SUPPLEMENT NO. 53
VOLUMES I AND II
June 2026

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2025-1141, approved December 17, 2025.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:137	SH:137—SH:141
CH:77, CH:78	CH:77, CH:78
CD1.01:1—CD1.01:4	CD1.01:1—CD1.01:4
CD1.04:1, CD1.04:2	CD1.04:1, CD1.04:2
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.40:3—CD2.40:6	CD2.40:3—CD2.40:6
	CD2.61:1, CD2.61:2
	CD2.114:1
CD2.154:1, CD2.154:2	CD2.154:1, CD2.154:2
	CD2.179:1—CD2.179:5
CD3.24:1, CD3.24:2	CD3.24:1, CD3.24:2
CD4.12:1—CD4.12:8	CD4.12:1—CD4.12:8
CD4.36:1—CD4.36:3	CD4.36:1—CD4.36:3
CD4.40:1	CD4.40:1
CD6.00:1	CD6.00:1
CD6.77:1, CD6.77:2	CD6.77:1, CD6.77:2
	CD6.78:1—CD6.78:12
CD9.20:1—CD9.20:3	CD9.20:1—CD9.20:3
CD10.26:1	CD10.26:1
CD10.28:1—CD10.28:3	CD10.28:1—CD10.28:3

Remove Old Pages	*Insert New Pages*
CD10.60:1—CD10.60:3	CD10.60:1—CD10.60:3
CD10.64:1—CD10.64:7	CD10.64:1—CD10.64:18
	VOLUME II
CD12.40:1—CD12.40:5	CD12.40:1—CD12.40:6
CD13.32:5—CD13.32:9	CD13.32:5—CD13.32:9
CD16.04:1—CD16.04:8	CD16.04:1—CD16.04:7
CD16.12:7—CD16.12:11	CD16.12:7—CD16.12:11
CD16.16:15, CD16.16:16	CD16.16:15—CD16.16:16.1
CD16.20:13—CD16.20:17	CD16.20:13—CD16.20:17
CD16.24:3—CD16.24:20	CD16.24:3—CD16.24:23
CD17.00:1	CD17.00:1
CD17.04:1—CD17.04:27	CD17.04:1—CD17.04:28
CD17.08:1—CD17.08:17	CD17.08:1—CD17.08:9
	CD17.08:11—CD17.08:16
CD17.10:1	CD17.10:1
CD17.12:1—CD17.12:27	CD17.12:1—CD17.12:26
CD17.16:1—CD17.16:15	CD17.16:1—CD17.16:15
CD17.20:1—CD17.20:10.1	CD17.20:1—CD17.20:10
CD17.24:13, CD17.24:14	CD17.24:13, CD17.24:14
CD17.28:9—CD17.28:16	CD17.28:9—CD17.28:16
CD17.36:1—CD17.36:2.1	CD17.36:1—CD17.36:2.1
CD17.36:25, CD17.36:26	CD17.36:25—CD17.36.27
CD17.37:1	CD17.37:1
	CD17.38:1—CD17.38:32
CD17.40:1—CD17.40:4.1	CD17.40:1—CD17.40:4.1
CD17.40:21—CD17.40:38	CD17.40:21—CD17.40:38
ODT:267—ODT:272	ODT:267—ODT:275
CDi:1—CDi:132	CDi:1—CDi:156

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SUPPLEMENT NO. 52
VOLUMES I AND II
January 2026

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2025-951, approved August 20, 2025.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:135	SH:135—SH:137
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.147:1, CD2:147:2	CD2.147:1, CD2:147:2
CD2.177:1—CD2.177:4	CD2.177:1—CD2:177.5
CD5.04:7—CD5.04:9	CD5.04:7—CD5.04:9
CD10.20:1—CD10.20:13	CD10.20:1—CD10.20:14
CD10.60:1—CD10.60:3	CD10.60:1—CD10.60:3
	VOLUME II
CD15.64:1—CD15.64:16	CD15.64:1—CD15.64:15
CD16.08:1—CD16.08:8	CD16.08:1—CD16.08:7
CD16.12:1—CD16.12:11	CD16.12:1—CD16.12:11
CD16.16:1—CD16.16:26	CD16.16:1—CD16.16:24
CD16.20:1—CD16.20:16	CD16.20:1—CD16.20:17
CD17.20:17, CD17.20:18	CD17.20:17, CD17.20:18
CD17.36:25, CD17.36:26	CD17.36:25, CD17.36:26
CD17.40:1, CD17.40:2	CD17.40:1, CD17.40:2
CD17.40:18.1—CD17.40:24	CD17.40:19—CD17.40:24.1
ODT:269	ODT:269—ODT:272
CDi:15, CDi:16	CDi:15, CDi:16

INSTRUCTION SHEET—Cont'd.

Remove Old Pages	*Insert New Pages*
CDi:20.1—CDi:22	CDi:21—CDi:22.1
CDi:39, CDi:40	CDi:39, CDi:40
CDi:65, CDi:66	CDi:65, CDi:66
CDi:84.1—CDi:89	CDi:85—CDi:90
CDi:99—CDi:100.2	CDi:99—CDi:100.2
CDi:102.5—CDi:102.7	CDi:102.5—CDi:102.7
CDi:119, CDi:120	CDi:119, CDi:120
CDi:127, CDi:128	CDi:127, CDi:128

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SUPPLEMENT NO. 51
VOLUMES I AND II
September 2025

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2025-817, approved May 22, 2025.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:131, SH:132	SH:131—SH:135
CH:63, CH:64	CH:63, CH:64
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:4
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.40:1—CD2.40:6	CD2.40:1—CD2.40:6
CD2.112:1, CD2.112:2	CD2.112:1, CD2.112:2
CD2.128:1, CD2.128:2	CD2.128:1, CD2.128:2
	CD2.130:1
CD2.132:1—CD2.132:3	CD2.132:1—CD2.132:3
CD2.148:1	CD2.148:1
CD2.153:1, CD2.153:2	CD2.153:1, CD2.153:2
CD2.155:1	CD2.155:1
CD2.156:1	CD2.156:1
CD2.211:1	CD2.211:1
CD4.08:1—CD4.08:3	CD4.08:1—CD4.08:3
CD4.12:1, CD4.12:2	CD4.12:1, CD4.12:2
CD4.46:1, CD4.46:2	CD4.46:1—CD4.46:2.1
CD6.28:7, CD6.28:8	CD6.28:7, CD6.28:8
CD6.54:1—CD6.54:4	CD6.54:1—CD6.54:4.1
CD6.72:1—CD6.72:15	CD6.72:1—CD6.72:15

INSTRUCTION SHEET—Cont'd.

Remove Old Pages	*Insert New Pages*
VOLUME II	
CD13.08:7—CD13.08:14	CD13.08:7—CD13.08:16
CD15.60:19—CD15.60:24	CD15.60:19—CD15.60:23
CD15.64:7—CD15.64:15 (11/24)	CD15.64:7—CD15.64:16
CD16.28:7—CD16.28:10	CD16.28:7—CD16.28:10
CD17.37:1	CD17.37:1
ODT:267	ODT:267—ODT:269
CDi:3—CDi:4.1	CDi:3—CDi:4.1
CDi:15—CDi:16.1	CDi:15—CDi:16.1
CDi:52.3—CDi:54	CDi:53—CDi:54.3
CDi:59, CDi:60	CDi:59, CDi:60
CDi:63, CDi:64	CDi:63, CDi:64
CDi:85, CDi:86	CDi:85, CDi:86
CDi:97, CDi:98	CDi:97, CDi:98
CDi:102.5, CDi:102.6	CDi:102.5, CDi:102.6

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SUPPLEMENT NO. 50
VOLUMES I AND II
July 2025

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2025-702, approved February 24, 2025.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:129, SH:130	SH:129—SH:132
CD4.12:1, CD4.12:2	CD4.12:1, CD4.12:2
	VOLUME II
CD17.04:5—CD17.04:8	CD17.04:5—CD17.04:8.1
CD17.04:23—CD17.04:27	CD17.04:23—CD17.04:27
CD17.12:23—CD17.12:27	CD17.12:23—CD17.12:27
CD17.24:1, CD17.24:2	CD17.24:1—CD17.24:2.1
CD17.28:7—CD17.28:16	CD17.28:7—CD17.28:16
CD17.36:23—CD17.36:26	CD17.36:23—CD17.36:26
ODT:265	ODT:265—ODT:267
CDi:129—CDi:132	CDi:129—CDi:132

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SUPPLEMENT NO. 49
VOLUMES I AND II
March 2025

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2024-593, approved November 20, 2024.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:127, SH:128	SH:127—SH:130
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.24:7—CD2.24:11	CD2.24:7—CD2.24:11
CD2.64:1, CD2.64:2	CD2.64:1, CD2.64:2
CD2.96:1	CD2.96:1
CD2.112:1, CD2.112:2	CD2.112:1, CD2.112:2
CD2.144:1, CD2.144:2	CD2.144:1, CD2.144:2
CD2.149:1, CD2.149.2	CD2.149:1, CD2.149.2
CD2.154:1, CD2.154:2	CD2.154:1, CD2.154:2
CD2.155:1	CD2.155:1
CD2.222:9	CD2.222:9
CD6.28:1—CD6.28:7	CD6.28:1—CD6.28:8
CD6.64:1—CD6.64:6	CD6.64:1—CD6.64:6
CD7.16:3—CD7.16:6	CD7.16:3—CD7.16:6
CD8.30:1	CD8.30:1
CD10.24:1—CD10.24:3	CD10.24:1—CD10.24:4
CD11.12:1—CD11.12:4	CD11.12:1—CD11.12:4
	VOLUME II
CD12.12:3—CD12.12:6	CD12.12:3—CD12.12:6

INSTRUCTION SHEET—Cont'd.

Remove Old Pages	*Insert New Pages*
CD12.48:1—CD12.48:3	CD12.48:1—CD12.48:3
CD13.08:2.1—CD13.08:14	CD13.08:3—CD13.08:14
CD16.16:11, CD16.16:12	CD16.16:11, CD16.16:12
ODT:257—ODT:263	ODT:257—ODT:265
CDi:9—CDi:16	CDi:9—CDi:16.1
CDi:58.1—CDi:60.3	CDi:59—CDi:60.4
CDi:82.1—CDi:84	CDi:83—CDi:84.1

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SUPPLEMENT NO. 48
VOLUMES I AND II
January 2025

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2024-475, approved August 20, 2024.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:125	SH:125—SH:128
CD2.63:1	CD2.63:1
CD2.147:1, CD2:147:2	CD2.147:1, CD2:147:2
CD4.20:1—CD4.20:5	CD4.20:1—CD4.20:6
CD6.64:1—CD6.64:6	CD6.64:1—CD6.64:6
	VOLUME II
CD13.08:1, CD13.08:2	CD13.08:1—CD13.08:2.1
CD13.08:13, CD13.08:14	CD13.08:13, CD13.08:14
CD15.52:1, CD15.52:2	CD15.52:1, CD15.52:2
CD15.64:8.1—CD15.64:15	CD15.64:9—CD15.64:15
CD16.04:1—CD16.04:8	CD16.04:1—CD16.04:8
CD17.04:7, CD17.04:8	CD17.04:7, CD17.04:8
CD17.04:25—CD17.04:27	CD17.04:25—CD17.04:27
CD17.08:9—CD17.08:17	CD17.08:9—CD17.08:17
CD17.12:11, CD17.12:12	CD17.12:11, CD17.12:12
CD17.16:3—CD17.16:8.1	CD17.16:3—CD17.16:8.1
CD17.20:19, CD17.20:20	CD17.20:19, CD17.20:20
CD17.37:1	CD17.37:1
CD17.40:33—CD17.40:38	CD17.40:33—CD17.40:38

INSTRUCTION SHEET—Cont'd.

Remove Old Pages	*Insert New Pages*
ODT:255—ODT:260	ODT:255—ODT:263
CDi:16.1—CDi:18.1	CDi:17—CDi:18.1
CDi:78.1—CDi:80	CDi:79—CDi:80.1
CDi:101—CDi:102.2	CDi:101—CDi:102.1
CDi:120.1—CDi:122	CDi:121—CDi:122.1

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SUPPLEMENT NO. 47
VOLUMES I AND II
August 2024

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2024-342, approved May 24, 2024.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:123	SH:123—SH:125
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.44:1—CD2.44:8	CD2.44:1—CD2.44:8
CD2.78:1	CD2.78:1
	CD2.107:1
CD2.112:1, CD2.112:2	CD2.112:1, CD2.112:2
CD2.196:3—CD2.196:8	CD2.196:3—CD2.196:9
	VOLUME II
CD12.41:3, CD12.41:4	CD12.41:3, CD12.41:4
CD13.08:7—CD13.08:14	CD13.08:7—CD13.08:14
CD15.64:11—CD15.64:15	CD15.64:11—CD15.64:15
CD16.04:1—CD16.04:8	CD16.04:1—CD16.04:8
CD16.08:1—CD16.08:8	CD16.08:1—CD16.08:8
CD17.04:3—CD17.04:28	CD17.04:3—CD17.04:27
CD17.08:9—CD17.08:17	CD17.08:9—CD17.08:17
CD17.16:3—CD17.16:6	CD17.16:3—CD17.16:6
CD17.36:19—CD17.36:25	CD17.36:19—CD17.36:26
ODT:257—ODT:259	ODT:257—ODT:260

INSTRUCTION SHEET—Cont'd.

Remove Old Pages	*Insert New Pages*
CDi:15—CDi:16.1	CDi:15—CDi:16.1
CDi:45—CDi:46.1	CDi:45—CDi:46.1
CDi:62.1—CDi:64	CDi:63—CDi:64.1
CDi:77, CDi:78	CDi:77, CDi:78
CDi:87—CDi:90	CDi:87—CDi:89

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SUPPLEMENT NO. 46
VOLUMES I AND II
June 2024

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2024-252, approved March 19, 2024.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:117, SH:118	SH:117—SH:123
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.222:7—CD2.222:9	CD2.222:7—CD2.222:9
CD6.28:7	CD6.28:7
CD7.08:1—CD7.08:4	CD7.08:1—CD7.08:4.1
CD9.30:1	CD9.30:1, CD9.30:2
	VOLUME II
CD12.72:1, CD12.72:2	CD12.72:1, CD12.72:2
CD13.00:1	CD13.00:1
CD13.08:3—CD13.08:13	CD13.08:3—CD13.08:14
	CD13.21:1
CD15.60:7, CD15.60:8	CD15.60:7—CD15.60:8.1
CD15.64:7, CD15.64:8	CD15.64:7—CD15.64:8.1
CD16.60:3	CD16.60:3
CD17.04:17—CD17.04:28	CD17.04:17—CD17.04:28
CD17.12:1, CD17.12:2	CD17.12:1, CD17.12:2
CD17.12:15—CD17.12:24	CD17.12:15—CD17.12:27
CD17.36:9—CD17.36:10.1	CD17.36:9—CD17.36:10.1
CD17.40:1—CD17.40:4.1	CD17.40:1—CD17.40:4.1

Remove Old Pages	*Insert New Pages*
CD17.40:21, CD17.40:22	CD17.40:21, CD17.40:22
ODT:255	ODT:255—ODT:259
CDi:33, CDi:34	CDi:33—CDi:34.1
CDi:54.1—CDi:56	CDi:55, CDi:56
CDi:65—CDi:66.1	CDi:65—CDi:66.1
CDi:101, CDi:102	CDi:100.1—CDi:101
CDi:113, CDi:114	CDi:112.1—CDi:113
CDi:127, CDi:128	CDi:127, CDi:128

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SUPPLEMENT NO. 45
VOLUMES I AND II
February 2024

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2023-2125, approved August 15, 2023.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:113	SH:113—SH:118
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.106:1	CD2.106:1—CD2.106:4
CD2.128:1, CD2.128:2	CD2.128:1, CD2.128:2
	CD2.153:1, CD2.153:2
	CD2.155:1
CD6.28:3—CD6.28:6	CD6.28:3—CD6.28:7
CD6.77:1—CD6.77:11	CD6.77:1—CD6.77:12
CD6.80:9, CD6.80:10	CD6.80:9—CD6.80:10.1
CD7.08:7—CD7.08:13	CD7.08:7—CD7.08:13
CD7.16:1—CD7.16:6	CD7.16:1—CD7.16:6
CD9.20:1—CD9.20:3	CD9.20:1—CD9.20:3
CD10.16:1—CD10.16:8	CD10.16:1—CD10.16:8
CD10.40:3	CD10.40:3
CD10.44:3	CD10.44:3
CD10.60:1—CD10.60:3	CD10.60:1—CD10.60:3
CD10.72:1	CD10.72:1
CD11.22:1	CD11.22:1, CD11.22:2
	VOLUME II
CD12.20:1, CD12.20:2	CD12.20:1, CD12.20:2

Remove Old Pages	*Insert New Pages*
CD15.64:1—CD15.64:14	CD15.64:1—CD15.64:15
CD16.08:1—CD16.08:6	CD16.08:1—CD16.08:8
CD17.20:1, CD17.20:2	CD17.20:1, CD17.20:2
CD17.20:18.1—CD17.20:24	CD17.20:19—CD17.20:26
CD17.28:3, CD17.28:4	CD17.28:3, CD17.28:4
CD17.32:1, CD17.32:2	CD17.32:1—CD17.32:2.1
CD17.36:1, CD17.36:2	CD17.36:1, CD17.36:2
CD17.36:9—CD17.36:10.1	CD17.36:9—CD17.36:10.1
CD17.40:27, CD17.40:28	CD17.40:27—CD17.40:28.1
ODT:249—ODT:251	ODT:249—ODT:255
CDi:10.1	CDi:10.1
CDi:13—CDi:16.1	CDi:13—CDi:16.1
CDi:26.1—CDi:28.1	CDi:27—CDi:28.1
CDi:31, CDi:32	CDi:31, CDi:32
CDi:36.1—CDi:44	CDi:37—CDi:44.1
CDi:53, CDi:54	CDi:53—CDi:54.1
CDi:59, CDi:60	CDi:58.1—CDi:59
CDi:61, CDi:62	CDi:61—CDi:62.1
CDi:65—CDi:66.1	CDi:65—CDi:66.1
CDi:85, CDi:86	CDi:85, CDi:86
CDi:102.3—CDi:102.7	CDi:102.3—CDi:102.7
CDi:119, CDi:120	CDi:119, CDi:120
CDi:127—CDi:132	CDi:127—CDi:132

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SUPPLEMENT NO. 44
VOLUMES I AND II
November 2023

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2023-1892, approved June 23, 2023.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:109	SH:109—SH:113
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
	CD2.147:1, CD2:147:2
CD7.16:1—CD7.16:2.1	CD7.16:1—CD7.16:2.1
CD8.00:1	CD8.00:1
CD8.04:1—CD8.04:6	CD8.04:1—CD8.04:7
CD8.08:1, CD8.08:2	CD8.08:1, CD8.08:2
	VOLUME II
CD15.32:3, CD15.32:4	CD15.32:3, CD15.32:4
CD15.44:3	CD15.44:3
CD16.24:3, CD16.24:4	CD16.24:3—CD16.24:4.1
CD16.33:1—CD16.33:4	CD16.33:1—CD16.33:4
CD17.04:9, CD17.04:10	CD17.04:9, CD17.04:10
CD17.04:27, CD17.04:28	CD17.04:27, CD17.04:28
CD17.12:11—CD17.12:14	CD17.12:11—CD17.12:14
ODT:225—ODT:248	ODT:225—ODT:251
CDi:6.1—CDi:10	CDi:7—CDi:10.1
CDi:15, CDi:16	CDi:15—CDi:16.1

Remove Old Pages	*Insert New Pages*
CDi:25, CDi:26	CDi:25—CDi:26.1
CDi:51, CDi:52	CDi:51, CDi:52
CDi:52.5 (10/22)—CDi:60	CDi:53—CDi:60.3
CDi:65, CDi:66	CDi:65—CDi:66.1
CDi:76.1 (11/21)—CDi:78.1	CDi:77—CDi:78.1
CDi:85, CDi:86	CDi:85, CDi:86
CDi:92.1—CDi:96	CDi:93—CDi:96.1

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SUPPLEMENT NO. 43
VOLUMES I AND II
July 2023

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2023-1739, approved March 23, 2023.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:105, SH:106	SH:105—SH:109
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.88:1, CD2.88:2	CD2.88:1, CD2.88:2
CD2.100:1, CD2.100:2	CD2.100:1, CD2.100:2
CD2.116:1	CD2.116:1
CD2.128:1, CD2.128:2	CD2.128:1, CD2.128:2
CD2.132:1—CD2.132:3	CD2.132:1—CD2.132:3
CD2.149:1, CD2.149.2	CD2.149:1, CD2.149.2
CD2.222:7—CD2.222:9	CD2.222:7—CD2.222:9
CD5.00:1	CD5.00:1
CD5.04:1—CD5.04:8	CD5.04:1—CD5.04:9
	CD5.22:1—CD5.22:5
CD6.00:1	CD6.00:1
CD6.08:11—CD6.08:20	CD6.08:11—CD6.08:20
CD6.28:5, CD6.28:6	CD6.28:5, CD6.28:6
CD6.104:1, CD6.104:2	CD6.104:1
CD7.04:1	CD7.04:1
	VOLUME II
CD12.12:1—CD12.12:5	CD12.12:1—CD12.12:6

Remove Old Pages	*Insert New Pages*
CD13.08:2.1—CD13.08:8	CD13.08:3—CD13.08:8.1
CD13.32:1—CD13.32:6	CD13.32:1—CD13.32:9
CD15.16:3—CD15.16:7	CD15.16:3—CD15.16:7
CD15.64:1—CD15.64:6	CD15.64:1—CD15.64:6.1
CD17.08:9, CD17.08:10	CD17.08:9, CD17.08:10
CD17.08:15—CD17.08:17	CD17.08:15—CD17.08:17
CD17.12:15, CD17.12:16	CD17.12:15, CD17.12:16
CD17.16:1—CD17.16:6	CD17.16:1—CD17.16:6
CD17.16:29, CD17.16:30	CD17.16:29—CD17.16:30.2
CD17.28:15, CD17.28:16	CD17.28:15, CD17.28:16
CD17.36:1—CD17.36:2.1	CD17.36:1—CD17.36:2.1
CD17.36:23, CD17.36:24	CD17.36:23—CD17.36:25
CD17.40:33—CD17.40:38	CD17.40:33—CD17.40:38
ODT:227—ODT:244	ODT:227—ODT:248
CDi:27—CDi:28.1	CDi:27— CDi:28.1
CDi:44.1—CDi:46	CDi:45—CDi:46.1
CDi:59, CDi:60	CDi:59, CDi:60
CDi:73, CDi:74	CDi:73, CDi:74
CDi:89—CDi:92	CDi:89—CDi:92.1
CDi:102.3, CDi:102.4	CDi:102.3—CDi:102.4.1
CDi:107—CDi:114.3	CDi:107—CDi:114.4
CDi:119—CDi:120.1	CDi:119—CDi:120.1
CDi:129—CDi:132	CDi:129—CDi:132

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SUPPLEMENT NO. 42
VOLUMES I AND II
March 2023

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2022-1577, approved December 22, 2022.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:101, SH:102	SH:101—SH:106
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.178:1—CD2.178:4	CD2.178:1—CD2.178:4
CD5.04:1—CD5.04:8	CD5.04:1—CD5.04:8
CD5.12:1—CD5.12:4	CD5.12:1—CD5.12:4
CD5.16:1—CD5.16:5	CD5.16:1—CD5.16:5
CD5.20:1, CD5.20:2	CD5.20:1, CD5.20:2
CD10.00:1	CD10.00:1
	CD10.19:1, CD10.19:2
CD10.56:19, CD10.56:20	CD10.56:19—CD10.56:20.1
CD10.64:5, CD10.64:6	CD10.64:5—CD10.64:7
	VOLUME II
CD13.08:9—CD13.08:13	CD13.08:9—CD13.08:13
CD13.20:1—CD13.20:5	CD13.20:1—CD13.20:6
CD13.32:5, CD13.32:6	CD13.32:5, CD13.32:6
CD17.04:3—CD17.04:4.1	CD17.04:3—CD17.04:4.1
CD17.04:25—CD17.04:28	CD17.04:25—CD17.04:28
CD17.08:11—CD17.08:17	CD17.08:11—CD17.08:17
CD17.12:15—CD17.12:23	CD17.12:15—CD17.12:24

Remove Old Pages	*Insert New Pages*
CD17.16:6.1—CD17.16:8	CD17.16:7—CD17.16:8.1
CD17.16:39—CD17.16:42	CD17.16:39—CD17.16:42
CD17.20:1—CD17.20:10	CD17.20:1—CD17.20:10.1
CD17.36:19—CD17.36:24	CD17.36:19—CD17.36:24
CD17.37:1	CD17.37:1
CD17.40:1—CD17.40:4.1	CD17.40:1—CD17.40:4.1
CD17.40:17, CD17.40:18	CD17.40:17—CD17.40:18.1
ODT:233—ODT:240	ODT:233—ODT:244
CDi:52.3, CDi:52.4	CDi:52.3, CDi:52.4
CDi:90.1—CDi:102	CDi:91—CDi:102.7

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SUPPLEMENT NO. 41
VOLUMES I AND II
December 2022

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2022-1378, approved August 17, 2022.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter is:

Resolution No. 2022-1475, adopted May 5, 2022,
Election of August 4, 2022.

See the Charter Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:99	SH:99—SH:102
CH:5—CH:15	CH:5—CH:15
CH:43—CH:46	CH:43—CH:46.1
CH:53—CH:56	CH:53—CH:56.1
CH:93, CH:94	CH:93—CH:94.2
CHCT:3, CHCT:4	CHCT:3, CHCT:4
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
	CD2:63:1
CD2.80:1, CD2.80:2	CD2.80:1, CD2.80:2
CD2.144:1, CD2.144:2	CD2.144:1, CD2.144:2
CD2.210:3	CD2.210:3
CD3.00:1	CD3.00:1
	CD3.06:1

Remove Old Pages	*Insert New Pages*
CD5.04:7	CD5.04:7, CD5.04:8
CD5.24:1	CD5.24:1
CD9.30:1	CD9.30:1
CD10.64:1—CD10.64:6	CD10.64:1—CD10.64:6
	VOLUME II
CD13.08:9—CD13.08:13	CD13.08:9—CD13.08:13
CD15.48:5, CD15.48:6	CD15.48:5, CD15.48:6
CD15.64:8.1—CD15.64:10	CD15.64:9, CD15.64:10
CD15.68:1, CD15.68:2	CD15.68:1, CD15.68:2
CD17.08:15—CD17.08:17	CD17.08:15—CD17.08:17
CD17.12:11—CD17.12:14	CD17.12:11—CD17.12:14
CD17.16:32.3—CD17.16:34	CD17.16:33—CD17.16:34.1
CD17.37:1	CD17.37:1
ODT:231—ODT:237	ODT:231—ODT:240
CHi:1—CHi:17	CHi:1—CHi:18
CDi:3, CDi:4	CDi:3—CDi:4.1
CDi:39, CDi:40	CDi:39, CDi:40
CDi:52.5	CDi:52.5
CDi:67—CDi:70.1	CDi:67—CDi:70.1

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SUPPLEMENT NO. 40
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September 2022

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2022-1229, approved May 18, 2022.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:91—SH:96	SH:91—SH:99
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.80:1, CD2.80:2	CD2.80:1, CD2.80:2
CD2.226:1, CD2.226.2	CD2.226:1, CD2.226.2
CD6.77:1—CD6.77:11	CD6.77:1—CD6.77:11
CD6.80:3—CD6.80:15	CD6.80:3—CD6.80:15
CD6.81:1—CD6.81:6	CD6.81:1—CD6:81:7
CD7.24:1—CD7.24:3	CD7.24:1, CD7.24:2
CD10.60:1—CD10.60:3	CD10.60:1—CD10.60:3
	VOLUME II
CD13.08:7—CD13.08:13	CD13.08:7—CD13.08:13
CD15.36:1—CD15.36:4	CD15.36:1—CD15.36:4
CD16.04:1—CD16.04:7	CD16.04:1—CD16.04:8
CD16.12:7—CD16.12:11	CD16.12:7—CD16.12:11
CD16.16:12.1—CD16.16:16	CD16.16:13—CD16.16:17
CD16.20:11—CD16.20:16	CD16.20:11—CD16.20:16
CD16.28:1—CD16.28:10	CD16.28:1—CD16.28:10
CD17.04:7—CD17.04:10	CD17.04:7—CD17.04:10
CD17.04:25—CD17.04:28	CD17.04:25—CD17.04:28
CD17.08:11—CD17.08:17	CD17.08:11—CD17.08:17

Remove Old Pages	*Insert New Pages*
CD17.12:1, CD17.12:2	CD17.12:1, CD17.12:2
CD17.12:19—CD17.12:22	CD17.12:19—CD17.12:23
CD17.16:5, CD17.16:6	CD17.16:5—CD17.16:6.1
CD17.16:31, CD17.16:32	CD17.16:31, CD17.16:32
CD17.20:1—CD17.20:4.1	CD17.20:1—CD17.20:4
CD17.20:18.1, CD17.20:18.2	CD17.20:18.1, CD17.20:18.2
CD17.24:1—CD17.24:16.1	CD17.24:1—CD17.24:14
CD17.28:1—CD17.28:12	CD17.28:1—CD17.28:16
CD17.36:5—CD17.36:10.1	CD17.36:5—CD17.36:10.1
CD17.40:1—CD17.40:4.1	CD17.40:1—CD17.40:4.1
CD17.40:21—CD17.40:37	CD17.40:21—CD17.40:38
ODT:221—ODT:234	ODT:221—ODT:237
CDi:4.1—CDi:6	CDi:5—CDi:6.1
CDi:15—CDi:18	CDi:15—CDi:18.1
CDi:35, CDi:36	CDi:35—CDi:36.1
CDi:58.1, CDi:58.2	CDi:58.1, CDi:58.2
CDi:65, CDi:66	CDi:65, CDi:66
CDi:117, CDi:118	CDi:117, CDi:118
CDi:127—CDi:130	CDi:127—CDi:130

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SUPPLEMENT NO. 39
VOLUMES I AND II
May 2022

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2022-1112, approved March 3, 2022.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter is:

Ordinance No. BL2021-1052, adopted January 18, 2022.

See the Charter Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:91	SH:91—SH:96
CHA:17, CHA:18	CHA:17—CHA:18.1
CHCT:3, CHCT:4	CHCT:3, CHCT:4
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.24:9—CD2.24:11	CD2.24:9—CD2.24:11
CD2.100:1, CD2.100:2	CD2.100:1, CD2.100:2
CD2.196:1—CD2.196:8	CD2.196:1—CD2.196:8
CD5.00:1	CD5.00:1
CD5.04:3—CD5.04:7	CD5.04:3—CD5.04:7
	CD5.11:1, CD5.11:2
CD6.00:1	CD6.00:1
CD6.72:7—CD6.72:15	CD6.72:7—CD6.72:15
CD6.75:7—CD6.75:13	CD6.75:7—CD6.75:13
	CD6.77:1—CD6.77:11

Remove Old Pages	*Insert New Pages*
CD7.08:1—CD7.08:13	CD7.08:1—CD7.08:13
CD7.24:1, CD7.24:2	CD7.24:1—CD7.24:3
CD9.20:1—CD9.20:3	CD9.20:1—CD9.20:3
	VOLUME II
CD12.40:5	CD12.40:5
CD12.54:9, CD12.54:10	CD12.54:9, CD12.54:10
CD13.08:9	CD13.08:9—CD13.08:13
CD16.28:3—CD16.28:10	CD16.28:3—CD16.28:10
CD17.12:17—CD17.12:22	CD17.12:17—CD17.12:22
CD17.28:7—CD17.28:10	CD17.28:7—CD17.28:10
CD17.36:1—CD17.36:2.1	CD17.36:1—CD17.36:2.1
CD17.36:21—CD17.36:24	CD17.36:21—CD17.36:24
CD17.37:1	CD17.37:1
CD17.40:21, CD17.40:22	CD17.40:21, CD17.40:22
CD17.40:31—CD17.40:37	CD17.40:31—CD17.40:37
ODT:211, ODT:212	ODT:211, ODT:212
ODT:225—ODT:230	ODT:225—ODT:234
CDi:27, CDi:28	CDi:27—CDi:28.1
CDi:43, CDi:44	CDi:43—CDi:44.1
CDi:88.1—CDi:90	CDi:89—CDi:90.2
CDi:113—CDi:114.3	CDi:113—CDi:114.3
CDi:129, CDi:130	CDi:129, CDi:130

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SUPPLEMENT NO. 38
VOLUMES I AND II
January 2022

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2021-883, approved October 5, 2021.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title Page	Title Page
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.24:5—CD2.24:11	CD2.24:5—CD2.24:11
CD2.40:5, CD2.40:6	CD2.40:5, CD2.40:6
CD2.56:1—CD2.56:4	CD2.56:1—CD2.56:4
CD2.136:1	CD2.136:1
CD2.149:1	CD2.149:1, CD2:149.2
	CD2:226:1, CD2:226.2
CD3.08:1—CD3.08:18	CD3.08:1—CD3.08:18
CD3.24:1, CD3.24:2	CD3.24:1, CD3.24:2
CD3.36:1, CD3.36:2	CD3.36:1, CD3.36:2
CD3.37:1, CD3.37:2	CD3.37:1, CD3.37:2
CD5.20:1, CD5.20:2	CD5.20:1, CD5.20:2

Remove Old Pages	*Insert New Pages*
	VOLUME II
Title Page	Title Page
CD13.08:1, CD13.08:2)	CD13.08:1—CD13.08:2.1
CD13.26:1	CD13.26:1
CD15.44:3, CD15.44:4	CD15.44:3
CD16.24:11—CD16.24:12.1	CD16.24:11—CD16.24:12.1
CD17.08:11—CD17.08:17	CD17.08:11—CD17.08:17
CD17.12:7—CD17.12:10	CD17.12:7—CD17.12:10
CD17.16:7, CD17.16:8	CD17.16:7, CD17.16:8
CD17.16:37—CD17.16:42	CD17.16:37—CD17.16:42
CD17.36:23, CD17.36:24	CD17.36:23, CD17.36:24
CD17.40:3, CD17.40:4	CD17.40:3—CD17.40:4.1
CD17.40:18.1—CD17.40:24	CD17.40:19—CD17.40:24.1
ODT:211—ODT:227	ODT:211—ODT:230
CDi:2.1—CDi:4.1	CDi:3—CDi:4.1
CDi:33, CDi:34	CDi:33, CDi:34
CDi:45, CDi:46	CDi:45, CDi:46
CDi:75, CDi:76	CDi:75—CDi:76.1
CDi:91—CDi:92.1	CDi:91—CDi:92.1
CDi:113—CDi:114.3	CDi:113—CDi:114.3

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SUPPLEMENT NO. 37
VOLUMES I AND II
October 2021

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2021-752, approved June 16, 2021.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:85, SH:86	SH:85—SH:89
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.44:1—CD2.44:8	CD2.44:1—CD2.44:8
CD2.56:5—CD2.56:7	CD2.56:5—CD2.56:7
CD2.64:1, CD2.64:2	CD2.64:1, CD2.64:2
CD2.76:1—CD2.76:3	CD2.76:1—CD2.76:3
CD2.84:1—CD2.84:3	CD2.84:1
CD2.92:1—CD2.92:3	CD2.92:1
CD3.24:1, CD3.24:2	CD3.24:1, CD3.24:2
CD3.52:1	CD3.52:1
CD4.04:3	CD4.04:3
CD4.08:1—CD4.08:3	CD4.08:1—CD4.08:3
CD4.12:1—CD4.12:4	CD4.12:1—CD4:12.4.1
CD4.20:1—CD4.20:4	CD4.20:1—CD4.20:5
CD4.36:1—CD4.36:3	CD4.36:1—CD4.36:3
CD10.20:1, CD10.20:2	CD10.20:1—CD10.20:2.1
CD10.20:11, CD10.20:12	CD10.20:11—CD10.20:13

Remove Old Pages	*Insert New Pages*
CD10.64:1—CD10.64:10	CD10.64:1—CD10.64:6
	VOLUME II
CD12.04:5—CD12.04:8	CD12.04:5—CD12.04:8
CD12.08:3—CD12.08:6	CD12.08:3—CD12.08:6
CD12.36:3	CD12.36:3
CD12.40:5	CD12.40:5
CD12.41:1—CD12.41:4	CD12.41:1—CD12.41:4
CD12.42:1—CD12.42:6	CD12.42:1—CD12.42:6
CD12.44:1—CD12.44:6	CD12.44:1—CD12.44:6
CD12.68:1—CD12.68:4	CD12.68:1—CD12.68:4
CD13.08:9	CD13.08:9
CD16.04:7	CD16.04:7
CD16.20:7, CD16.20:8	CD16.20:7—CD16.20:8.1
CD16.28:2.1—CD16.28:4	CD16.28:3—CD16.28:4.1
CD17.28:5—CD17.28:8	CD17.28:5—CD17.28:12
CD17.36:1—CD17.36:2.1	CD17.36:1—CD17.36:2.1
CD17.36:23	CD17.36:23, CD17.36:24
CD17.40:33—CD17.40:37	CD17.40:33—CD17.40:37
ODT:219—ODT:225	ODT:219—ODT:227
CDi:1—CDi:2.1	CDi:1—CDi:2.1
CDi:9—CDi:16	CDi:9—CDi:16.1
CDi:31—CDi:52	CDi:31—CDi:52.5
CDi:61—CDi:70	CDi:61—CDi:70.1
CDi:75—CDi:78.1	CDi:75—CDi:78.1
CDi:85—CDi:88.1	CDi:85—CDi:88.1
CDi:95—CDi:96.2	CDi:95—CDi:96.2
CDi:100.3—CDi:108.1	CDi:101—CDi:108.1
CDi:127—CDi:132	CDi:127—CDi:132

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SUPPLEMENT NO. 36
VOLUMES I AND II
June 2021

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2021-653, approved March 22, 2021.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:83, SH:84	SH:83—SH:86
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.222:3—CD2.222:6	CD2.222:3—CD2.222:6
CD5.04:5—CD5.04:7	CD5.04:5—CD5.04:7
	VOLUME II
CD12.20:1, CD12.20:2	CD12.20:1, CD12.20:2
CD17.24:1—CD17.24:4.1	CD17.24:1—CD17.24:4.2
CD17.40:21—CD17.40:22.1	CD17.40:21—CD17.40:22.1
SR:1—SR:3	SR:1—SR:3
ODT:211—ODT:222	ODT:211—ODT:225
CDi:129—CDi:131	CDi:129—CDi:132

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SUPPLEMENT NO. 35
VOLUMES I AND II
March 2021

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2020-549, approved December 16, 2020.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:81	SH:81—SH:84
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD1.24:1, CD1.24:2	CD1.24:1, CD1.24:2
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.08:1, CD2.08:2	CD2.08:1, CD2.08:2
CD2.210:1—CD2:210:3	CD2.210:1—CD2:210:3
	CD2:232:1
CD4.12:7, CD4.12:8	CD4.12:7, CD4.12:8
CD4.36:1—CD4.36:3	CD4.36:1—CD4.36:3
CD6.28:1—CD6.28:6	CD6.28:1—CD6.28:6
CD7.08:3, CD7.08:4	CD7.08:3—CD7.08:4.1
CD9.30:1	CD9.30:1
CD11.22:1	CD11.22:1

Remove Old Pages	*Insert New Pages*
	VOLUME II
CD13.08:7—CD13.08:9	CD13.08:7—CD13.08:9
CD15.64:1—CD15.64:2.1	CD15.64:1—CD15.64:2.1
CD15.64:7, CD15.64:8	CD15.64:7—CD15.64:8.1
CD16.08:1—CD16.08:9	CD16.08:1—CD16.08:6
CD16.12:1—CD16.12:14	CD16.12:1—CD16.12:11
CD16.16:1, CD16.16:2	CD16.16:1, CD16.16:2
CD16.16:5—CD16.16:12	CD16.16:5—CD16.16:12.1
CD16.20:1—CD16.20:16	CD16.20:1—CD16.20:16
CD16.28:7—CD16.28:10	CD16.28:7—CD16.28:10
CD17.24:1—CD17.24:4	CD17.24:1—CD17.24:4.1
ODT:213—ODT:220	ODT:213—ODT:222
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:11, CDi:12	CDi:11, CDi:12
CDi:18.1—CDi:20	CDi:19—CDi:20.1
CDi:23—CDi:26	CDi:23—CDi:26
CDi:32.1, CDi:32.2	CDi:32.1, CDi:32.2
CDi:39, CDi:40	CDi:39, CDi:40
CDi:61, CDi:62	CDi:61, CDi:62
CDi:85, CDi:86	CDi:85—CDi:86.1
CDi:119—CDi:120.1	CDi:119—CDi:120.1

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SUPPLEMENT NO. 34
VOLUMES I AND II
December 2020

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2020-421, approved September 15, 2020.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:79	SH:79—SH:81
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.08:1—CD2.08:3	CD2.08:1—CD2.08:3
CD2.24:5—CD2.24:10	CD2.24:5—CD2.24:11
CD2.44:1—CD2.44:7	CD2.44:1—CD2.44:8
	CD2.106:1
CD2.196:1—CD2.196:4	CD2.196:1—CD2.196:8
CD2.222:7—CD2.222:9	CD2.222:7—CD2.222:9
CD4.48:3—CD4.48:5	CD4.48:3—CD4.48:5
CD5.12:1, CD5.12:2	CD5.12:1, CD5.12:2
CD5.16:1—CD5.16:5	CD5.16:1—CD5.16:5
CD6.28:1	CD6.28:1—CD6.28:6
CD7.16:3—CD7.16:5	CD7.16:3—CD7.16:6

Remove Old Pages	*Insert New Pages*
CD10.18:1—CD10.18:3	CD10.18:1—CD10.18:3
CD10.64:1, CD10.64:2	CD10.64:1—CD10.64:2.1
	VOLUME II
CD12.00:1	CD12.00:1
CD12.48:1, CD12.48:2	CD12.48:1—CD12.48:3
	CD12.61:1
CD13.08:1—CD13.08:9	CD13.08:1—CD13.08:9
CD13.12:1—CD13.12:4	CD13.12:1—CD13.12:4
CD13.20:1—CD13.20:5	CD13.20:1—CD13.20:5
CD13.32:5, CD13.32:6	CD13.32:5, CD13.32:6
CD15.64:1, CD15.64:2	CD15.64:1—CD15.64:2.1
CD15.64:13, CD15.64:14	CD15.64:13, CD15.64:14
CD16.04:1—CD16.04:7	CD16.04:1—CD16.04:7
CD16.24:9—CD16.24:12.1	CD16.24:9—CD16.24:12.1
CD17.16:13—CD17.16:16	CD17.16:13—CD17.16:15
CD17.16:37—CD17.16:43	CD17.16:37—CD17.16:42
CD17.20:9—CD17.20:12	CD17.20:9—CD17.20:12
CD17.20:18.1	CD17.20:18.1, CD17.20:18.2
CD17.37:1	CD17.37:1
ODT:211—ODT:217	ODT:211—ODT:220
CDi:13—CDi:18	CDi:13—CDi:18.1
CDi:31—CDi:32.2	CDi:31—CDi:32.2
CDi:44.1—CDi:46	CDi:45—CDi:46.3
CDi:53, CDi:54	CDi:53, CDi:54
CDi:59—CDi:68.1	CDi:59—CDi:68.1
CDi:77—CDi:78.1	CDi:77—CDi:78.1
CDi:86.1—CDi:88	CDi:87—CDi:88.1
CDi:90.1—CDi:92	CDi:91—CDi:92.1
CDi:96.3—CDi:100	CDi:97—CDi:100.3
CDi:107, CDi:108	CDi:107—CDi:108.1
CDi:119, CDi:120	CDi:119—CDi:120.1

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SUPPLEMENT NO. 33 (7/20)
VOLUMES I AND II
August 2020

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2020-298, approved June 10, 2020.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:75, SH:76	SH:75—SH:79
CH:19—CH:26.1	CH:19—CH:26.1
CH:41, CH:42	CH:41, CH:42
CH:57, CH:58	CH:57, CH:58
CH:85, CH:86	CH:85, CH:86
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.108:1, CD2.108:2	CD2.108:1, CD2.108:2
CD2.154:1, CD2.154:2	CD2.154:1, CD2.154:2
CD2.175:1	CD2.175:1
CD5.10:1	CD5.10:1, CD5:10.2
CD5.12:3, CD5.12:4	CD5.12:3, CD5.12:4
CD9.00:1	CD9.00:1
CD9.10:1	CD9.10:1
CD9.20:1—CD9.20:3	CD9.20:1—CD9.20:3

Remove Old Pages	*Insert New Pages*
CD9.30:1	CD9.30:1
CD11.00:1	CD11.00:1
	CD11:22.1
	VOLUME II
CD12.62:1, CD12.62:2	CD12.62:1, CD12.62:2
CD13.24:9, CD13.24:10	CD13.24:9, CD13.24:10
CD16.04:3, CD16.04:4	CD16.04:3, CD16.04:4
CD16.28:7—CD16.28:10	CD16.28:7—CD16.28:10
CD17.20:9, CD17.20:10	CD17.20:9, CD17.20:10
CD17.36:1, CD17.36:2	CD17.36:1—CD17:36.2.1
CD17.36:21, CD17.36:22	CD17.36:21—CD17:36:23
CD17.40:31—CD17.40:37	CD17.40:31—CD17.40:37
ODT:213—ODT:214	ODT:213—ODT:217
CDi:3—CDi:4.1	CDi:3—CDi:4.1
CDi:37, CDi:38	CDi:37, CDi:38
CDi:64.1—CDi:66	CDi:65—CDi:66.1
CDi:76.1—CDi:78	CDi:77—CDi:78.1
CDi:85, CDi:86	CDi:85—CDi:86.1
CDi:131	CDi:131

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SUPPLEMENT NO. 32 (4/20)
VOLUMES I AND II
June 2020

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2020-176, approved March 18, 2020.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:73, SH:74	SH:73—SH:76
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD10.18:1, CD10.18:2	CD10.18:1—CD10.18:3
	VOLUME II
CD13.00:1	CD13.00:1
CD13.08:1—CD13.08:2.1	CD13.08:1—CD13.08:2.1
	CD13.27:1
CD13.28:1	CD13.28:1
CD16.04:5—CD16.04:7	CD16.04:5—CD16.04:7
CD16.08:3, CD16.08:4	CD16.08:3—CD16.08:4.1
CD16.12:5—CD16.12:8	CD16.12:5—CD16.12:8.1
CD17.08:1—CD17.08:14	CD17.08:1—CD17.08:17
CD17.12:1—CD17.12:21	CD17.12:1—CD17.12:22

Remove Old Pages	*Insert New Pages*
CD17.16:7—CD17.16:31	CD17.16:7—CD17.16:32.3
CD17.20:8.1—CD17.20:14	CD17.20:9—CD17.20:13
CD17.20:23—CD17.20:25	CD17.20:23, CD17.20:24
CD17.24:7—CD17.24:16	CD17.24:7—CD17.24:16.1
CD17.28:1—CD17.28:9	CD17.28:1—CD17.28:8
CD17.32:1—CD17.32:17	CD17.32:1—CD17.32:18
CD17.36:21, CD17.36:22	CD17.36:21, CD17.36:22
CD17.40:25—CD17.40:32	CD17.40:25—CD17.40:32
ODT:211—ODT:213	ODT:211—ODT:215
CDi:94.1—CDi:96	CDi:95—CDi:96.5
CDi:131	CDi:131

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SUPPLEMENT NO. 31 (1/20)
VOLUMES I AND II
March 2020

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2019-94, approved December 20, 2019.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:71, SH:72	SH:71—SH:74
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.24:5—CD2.24:10	CD2.24:5—CD2.24:10
CD2.144:1, CD2:144:2	CD2.144:1, CD2:144:2
CD2.212:1, CD2.212:2	CD2.212:1, CD2.212:2
CD5.04:1—CD5.04:6	CD5.04:1—CD5.04:7
CD10.16:5—CD10.16:8	CD10.16:5—CD10.16:8
	VOLUME II
CD12.08:3—CD12.08:6	CD12.08:3—CD12.08:6
CD13.08:1—CD13.08:2.1	CD13.08:1—CD13.08:2.1
CD15.20:1—CD15.20:3	CD15.20:1—CD15.20:3
CD15.32:1—CD15.32:5	CD15.32:1—CD15.32:4

Remove Old Pages	*Insert New Pages*
CD15.36:1—CD15.36:4	CD15.36:1—CD15.36:4
CD15.44:1—CD15.44:4	CD15.44:1—CD15.44:4
CD15.48:1—CD15.48:5	CD15.48:1—CD15.48:6
CD15.52:1, CD15.52:2	CD15.52:1, CD15.52:2
CD17.04:3—CD17.04:4.1	CD17.04:3—CD17.04:4.1
CD17.04:27, CD17.04:28	CD17.04:27, CD17.04:28
CD17.08:11—CD17.08:14	CD17.08:11—CD17.08:14
CD17.16:13—CD17.16:20	CD17.16:13—CD17.16:20.3
CD17.16:39—CD17.16:43	CD17.16:39—CD17.16:43
CD17.20:1, CD17.20:2	CD17.20:1, CD17.20:2
CD17.20:7, CD17.20:8	CD17.20:7—CD17.20:8.1
CD17.40:21, CD17.40:22	CD17.40:21—CD17.40:22.1
ODT:211, ODT:212	ODT:211—ODT:213
CDi:63, CDi:64	CDi:63—CDi:64.1
CDi:89—CDi:90.1	CDi:89—CDi:90.1
CDi:117—CDi:124	CDi:117—CDi:124.1

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SUPPLEMENT NO. 30 (10/19)
VOLUMES I AND II
December 2019

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2019-1800, approved August 21, 2019.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter is:

Resolution No. RS2019-1720, Amendments 1, 2, adopted August 1, 2019.

See the Charter Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:65	SH:65—SH:72
CH:25, CH:26	CH:25—CH:26.1
CH:49, CH:50	CH:49—CH:50.1
CHCT:3, CHCT:4	CHCT:3, CHCT:4
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD1.24:1, CD1.24:2	CD1.24:1, CD1.24:2
CD2.32:1, CD2.32:2	CD2.32:1—CD2.32:4
CD2.149:1	CD2.149:1

Remove Old Pages	*Insert New Pages*
CD2.178:3, CD2.178:4	CD2.178:3, CD2.178:4
CD2.210:1—CD2:210:3	CD2.210:1—CD2:210:3
CD2.211:1	CD2.211:1
CD4.12:1—CD4.12:7	CD4.12:1—CD4.12:8
CD4.20:1—CD4.20:4	CD4.20:1—CD4.20:4
CD5.04:5, CD5.04:6	CD5.04:5, CD5.04:6
CD5.06:1—CD5.06:3	CD5.06:1—CD5.06:3
CD5.24:1	CD5.24:1
CD6.72:8.1—CD6.72:10	CD6.72:9—CD6.72:10.1
CD6.73:1, CD6.73:2	CD6.73:1—CD6.73:2.1
CD6.73:5, CD6.73:6	CD6.73:5—CD6.73:6.1
CD6.74:1, CD6.74:2	CD6.74:1—CD6.74:2.1
CD6.74:9—CD6.74:14	CD6.74:9—CD6.74:14
CD6.75:1, CD6.75:2	CD6.75:1, CD6.75:2
CD6.75:7, CD6.75:8	CD6.75:7—CD6.75:8.1
CD6.80:1—CD6.80:8	CD6.80:1—CD6.80:8.1
CD7.08:1—CD7.08:8	CD7.08:1—CD7.08:8
CD9.00:1	CD9.00:1
	CD9.10:1
	CD9.20:1—CD9.20:3
	CD9.30:1
CD10.44:1—CD10.44:3	CD10.44:1—CD10.44:3
CD11.12:3—CD11.12:6	CD11.12:3, CD11.12:4
	VOLUME II
CD12.32:1—CD12.32:3	CD12.32:1, CD12.32:2
CD12.54:1—CD12.54:13	CD12.54:1—CD12.54:14
CD12.62:1—CD12.62:7	CD12.62:1, CD12.62:2
CD12.84:1, CD12.84:2	CD12.84:1, CD12.84:2
CD15.64:7—CD15.64:13	CD15.64:7—CD15.64:14
CD16.44:1, CD16.44:2	CD16.44:1
CD16.60:1—CD16.60:3	CD16.60:1—CD16.60:3
CD17.00:1	CD17.00:1
CD17.04:7—CD17.04:10	CD17.04:7—CD17.04:10
CD17.04:19, CD17.04:20	CD17.04:19—CD17.04:20.1
CD17.04:25—CD17.04:28	CD17.04:25—CD17.04:28
CD17.08:9—CD17.08:14	CD17.08:9—CD17.08:14
CD17.16:9—CD17.16:14.2	CD17.16:9—CD17.16:14.3
CD17.16:39—CD17.16:43	CD17.16:39—CD17.16:43

Remove Old Pages	*Insert New Pages*
CD17.20:1, CD17.20:2	CD17.20:1, CD17.20:2
CD17.20:17, CD17.20:18	CD17.20:17—CD17.20:18.1
CD17.24:1—CD17.24:22	CD17.24:1—CD17.24:21
CD17.28:1, CD17.28:2	CD17.28:1, CD17.28:2
CD17.28:5	CD17.28:5
CD17.32:13—CD17.32:16	CD17.32:13—CD17.32:16
CD17.36:1—CD17.36:10.1	CD17.36:1—CD17.36:10.1
CD17.36:19, CD17.36:20	CD17.36:19—CD17.36:22
CD17.40:1—CD17.40:2.1	CD17.40:1, CD17.40:2
CD17.40:5—CD17.40:8	CD17.40:5—CD17.40:8.1
CD17.40:22.1—CD17.40:36	CD17.40:23—CD17.40:37
SR:1—SR:3	SR:1—SR:3
ODT:179—ODT:205	ODT:179—ODT:212
CDi:7—CDi:32	CDi:7—CDi:32.4
CDi:37—CDi:42	CDi:37—CDi:42.1
CDi:47—CDi:58.1	CDi:47—CDi:58.2
CDi:65—CDi:68	CDi:65—CDi:68.1
CDi:72.1—CDi:76	CDi:73—CDi:76.1
CDi:81—CDi:82.1	CDi:81—CDi:82.1
CDi:87—CDi:90	CDi:87—CDi:90.1
CDi:94.1, CDi:94.2	CDi:94.1, CDi:94.2
CDi:101—CDi:114	CDi:101—CDi:114.3
CDi:123—CDi:130	CDi:123—CDi:131

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SUPPLEMENT NO. 29 (2/19), REVISION
VOLUMES I AND II
June 2019

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement No. 29 (2/19), Revision, is printed to revise pages appearing in Supplement No. 29 (2/19), and should be inserted as directed below.

The Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2018-1451, approved January 16, 2019.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter is:

Ordinance No. BL2018-1314, Amendment 6, adopted November 6, 2018.

See the Charter Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
CH:67, CH:68	CH:67, CH:68
CHCT:3, CHCT:4	CHCT:3, CHCT:4

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SUPPLEMENT NO. 29 (2/19)
VOLUMES I AND II
May 2019

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2018-1451, approved January 16, 2019.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter is:

Ordinance No. BL2018-1314, Amendment 6, adopted November 6, 2018.

See the Charter Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:61, SH:62	SH:61—SH:65
CH:3—CH:96	CH:3—CH:15
	CH:17—CH:102
CHCT:1	CHCT:1—CHCT:4
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD1.04:1, CD1.04:2	CD1.04:1, CD1.04:2
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.206:1	CD2.206:1
	CD2:230:1
CD4.00:1	CD4.00:1
CD4.46:1—CD4.46:10	CD4.46:1—CD4:46.11
	CD4:46:1—CD4:46:11
CD5.04:1—CD5.04:5	CD5.04:1—CD5.04:6

Remove Old Pages	*Insert New Pages*
CD7.08:1—CD7.08:12	CD7.08:1—CD7.08:13
CD7.16:1, CD7.16:2	CD7.16:1—CD7.16:2.1
CD10.20:7, CD10.20:8	CD10.20:7—CD10.20:8.1
	VOLUME II
CD12.42:1—CD12.42:5	CD12.42:1—CD12.42:6
CD17.04:3, CD17.04:4	CD17.04:3—CD17.04:4.1
CD17.04:9, CD17.04:10	CD17.04:9, CD17.04:10
CD17.04:27, CD17.04:28	CD17.04:27, CD17.04:28
CD17.16:6.1—CD17.16:10	CD17.16:7—CD17.16:10.1
CD17.16:14.1, CD17.16:14.2	CD17.16:14.1, CD17.16:14.2
CD17.20:1, CD17.20:2	CD17.20:1, CD17.20:2
CD17.24:1—CD17.24:6.1	CD17.24:1—CD17.24:6.2
CD17.28:7—CD17.28:9	CD17.28:7—CD17.28:9
CD17.40:15—CD17.40:18	CD17.40:15—CD17.40:18.1
ODT:189—ODT:202	ODT:189—ODT:205
CHi:1—CHi:10	CHi:1—CHi:10
CDi:3, CDi:4	CDi:3—CDi:4.1
CDi:26.1—CDi:28	CDi:27—CDi:28.1
CDi:33—CDi:34.1	CDi:33—CDi:34.1
CDi:39—CDi:44.1	CDi:39—CDi:44.2
CDi:70.1—CDi:72	CDi:71—CDi:72.1
CDi:79—CDi:82.1	CDi:79—CDi:82.1
CDi:93—CDi:94.4	CDi:93—CDi:94.4

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SUPPLEMENT NO. 28 (9/18)
VOLUMES I AND II
October 2018

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2018-1304, approved September 5, 2018.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents) SH:57—SH:62
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.24:1—CD2.24:10	CD2.24:1—CD2.24:10
CD2.140:1, CD2.140:2	CD2.140:1, CD2.140:2
CD2.144:1	CD2.144:1, CD2:144:2
CD2.164:1	CD2.164:1
	CD2.178:1—CD2.178:4
CD2.222:7—CD2.222:9	CD2.222:7—CD2.222:9
CD3.16:1, CD3.16:2	CD3.16:1, CD3.16:2
CD4.46:3—CD4.46:6.1	CD4.46:3—CD4.46:6.1
CD5.04:1—CD5.04:5	CD5.04:1—CD5.04:5
CD5.12:3, CD5.12:4	CD5.12:3, CD5.12:4
CD5.14:1, CD5.14:2	CD5.14:1, CD5.14:2
CD6.28:1	CD6.28:1
CD6.80:9—CD6.80:14	CD6.80:9—CD6.80:15
CD8.00:1	CD8.00:1
	CD8.30:1
CD10.20:11, CD10.20:12	CD10.20:11, CD10.20:12

Remove Old Pages	*Insert New Pages*
CD10.28:1—CD10.28:3	CD10.28:1—CD10.28:3
CD10.64:1, CD10.64:2	CD10.64:1, CD10.64:2
CD10.64:9, CD10.64:10	CD10.64:9, CD10.64:10
	VOLUME II
CD12.00:1	CD12.00:1
CD12.04:1—CD12.04:8	CD12.04:1—CD12.04:8
CD12.58:1, CD12.58:2	CD12.58:1, CD12.58:2
	CD12.62:1—CD12.62:7
CD13.08:5—CD13.08:9	CD13.08:5—CD13.08:9
CD15.64:1, CD15.64:2	CD15.64:1, CD15.64:2
CD15.64:11—CD15.64:13	CD15.64:11—CD15.64:13
CD16.04:1—CD16.04:7	CD16.04:1—CD16.04:7
CD16.24:8.1—CD16.24:12	CD16.24:9—CD16.24:12.1
CD17.40:1, CD17.40:2	CD17.40:1—CD17.40:2.1
CD17.40:19, CD17.40:20	CD17.40:19, CD17.40:20
SR:1—SR:3	SR:1—SR:3
ODT:181—ODT:198	ODT:181—ODT:202
CDi:9, CDi:10	CDi:9—CDi:10.1
CDi:15—CDi:16.1	CDi:15—CDi:16.1
CDi:22.1—CDi:26	CDi:23—CDi:26.1
CDi:31, CDi:32	CDi:31, CDi:32
CDi:37, CDi:38	CDi:37, CDi:38
CDi:42.1—CDi:44	CDi:43—CDi:44.1
CDi:51—CDi:52.1	CDi:51—CDi:52.1
CDi:57, CDi:58	CDi:57—CDi:58.1
CDi:63, CDi:64	CDi:63, CDi:64
CDi:89—CDi:94.4	CDi:89—CDi:94.4
CDi:100.1—CDi:108	CDi:101—CDi:108.1
CDi:119—CDi:120.1	CDi:119—CDi:120.1
CDi:125, CDi:126	CDi:125—CDi:126.1

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SUPPLEMENT NO. 27 (2/18)
VOLUMES I AND II
April 2018

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2017-1037, approved January 29, 2018.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:51, SH:52	SH:51—SH:56
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.04:1, CD2.04:2	CD2.04:1, CD2.04:2
CD2.24:5—CD2.24:10	CD2.24:5—CD2.24:10
CD2.88:1, CD2.88:2	CD2.88:1, CD2.88:2
CD2.210:1, CD2.210:2	CD2.210:1—CD2:210:3
CD2.212:1, CD2.212:2	CD2.212:1, CD2.212:2
	CD2.215:1
CD4.12:3—CD4.12:7	CD4.12:3—CD4.12:7
CD4.48:1—CD4.48:5	CD4.48:1—CD4.48:5
CD5.04:1—CD5.04:5	CD5.04:1—CD5.04:5
CD5.24:1	CD5.24:1
CD6.64:1—CD6.64:5	CD6.64:1—CD6.64:6
CD6.80:9—CD6.80:14	CD6.80:9—CD6.80:14
CD7.08:3—CD7.08:12	CD7.08:3—CD7.08:12
CD10.00:1	CD10.00:1
CD10.28:1	CD10.28:1—CD10.28:3

Remove Old Pages	*Insert New Pages*
	VOLUME II
CD13.20:1—CD13.20:5	CD13.20:1—CD13.20:5
CD15.64:5—CD15.64:13	CD15.64:5—CD15.64:13
CD16.04:5, CD16.04:6	CD16.04:5—CD16.04:7
CD16.24:7, CD16.24:8	CD16.24:7—CD16.24:8.1
CD16.28:1, CD16.28:2	CD16.28:1, CD16.28:2
CD16.28:7—CD16.28:9	CD16.28:7—CD16.28:10
CD17.04:7—CD17.04:10	CD17.04:7—CD17.04:10.1
CD17.04:17—CD17.04:27	CD17.04:17—CD17.04:28
CD17.08:7—CD17.08:14	CD17.08:7—CD17.08:14
CD17.12:15, CD17.12:16	CD17.12:15—CD17.12:16.1
CD17.16:3—CD17.16:6	CD17.16:3—CD17.16:6.1
CD17.16:11—CD17.16:14	CD17.16:11—CD17.16:14.2
CD17.16:37—CD17.16:43	CD17.16:37—CD17.16:43
CD17.20:1—CD17.20:4	CD17.20:1—CD17.20:4.1
CD17.28:3—CD17.28:6	CD17.28:3—CD17.28:5
SR:1—SR:3	SR:1—SR:3
ODT:181—ODT:193	ODT:181—ODT:198
CDi:3, CDi:4	CDi:3, CDi:4
CDi:8.1—CDi:16	CDi:9—CDi:16.1
CDi:29—CDi:34	CDi:29—CDi:34.1
CDi:47—CDi:52	CDi:47—CDi:52.1
CDi:61—CDi:66	CDi:61—CDi:66
CDi:77—CDi:82	CDi:77—CDi:82.1
CDi:89—CDi:94	CDi:89—CDi:94.4
CDi:111, CDi:112	CDi:111, CDi:112

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SUPPLEMENT NO. 26 (9/17)
VOLUMES I AND II
November 2017

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2017-833, approved August 16, 2017.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:45, SH:46	SH:45—SH:52
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.20:3	CD2.20:3
CD2.24:3—CD2.24:9	CD2.24:3—CD2.24:10
CD2.28:3—CD2.28:5	CD2.28:3—CD2.28:5
CD2.44:1—CD2.44:7	CD2.44:1—CD2.44:7
CD2.68:1	CD2.68:1
CD2.140:1	CD2.140:1, CD2.140:2
CD2.154:1	CD2.154:1, CD2.154:2
CD2.176:3, CD2.176:4	CD2.176:3, CD2.176:4
CD2.177:1—CD2.177:4	CD2.177:1—CD2.177:4
CD2.210:1, CD2.210:2	CD2.210:1, CD2.210:2
CD5.04:1—CD5.04.4	CD5.04:1—CD5.04:5
CD5.12:1, CD5.12:2	CD5.12:1, CD5.12:2
CD6.04:1—CD6.04:3	CD6.04:1—CD6.04:3
CD6.28:1	CD6.28:1
CD6.32:1, CD6.32:2	CD6.32:1—CD6.32:6
CD6.72:7, CD6.72:8	CD6.72:7—CD6.72:8.1

Remove Old Pages	*Insert New Pages*
CD6.74:1—CD6.74:4	CD6.74:1—CD6.74:4.1
CD6.81:1—CD6.81:5	CD6.81:1—CD6.81:6
CD7.00:1	CD7.00:1
CD7.04:1	CD7.04:1
CD7.08:1—CD7.08:12	CD7.08:1—CD7.08:12
CD7.12:1, CD7.12:2	CD7.12:1, CD7.12:2
CD7.16:1—CD7.16:5	CD7.16:1—CD7.16:5
CD7.20:1	CD7.20:1
CD8.00:1	CD8.00:1
CD8.12:3—CD8.12:6	CD8.12:3—CD8.12:6
CD8.20:1—CD8.20:3	CD8.20:1—CD8.20:3
CD10.48:1, CD10.48:2	CD10.48:1, CD10.48:2
CD11.28:3—CD11.28:5	CD11.28:3—CD11.28:6
	VOLUME II
CD12.04:1, CD12.04:2	CD12.04:1, CD12.04:2
CD12.48:1, CD12.48:2	CD12.48:1, CD12.48:2
CD12.52:1, CD12.52:2	CD12.52:1—CD12.52:3
CD12.54:7, CD12.54:8	CD12.54:7—CD12.54:8.1
CD13.08:1, CD13.08:2	CD13.08:1—CD13.08:2.1
CD13.08:7	CD13.08:7—CD13.08:9
CD13.40:1, CD13.40:2	CD13.40:1, CD13.40:2
CD15.64:1—CD15.64:13	CD15.64:1—CD15.64:13
CD16.04:3—CD16.04:6	CD16.04:3—CD16.04:6
CD17.04:15—CD17.04:27	CD17.04:15—CD17.04:27
CD17.08:11—CD17.08:14	CD17.08:11—CD17.08:14
CD17.12:1, CD17.12:2	CD17.12:1, CD17.12:2
CD17.16:18.1—CD17.16:22	CD17.16:19—CD17.16:22.1
CD17.16:29—CD17.16:32	CD17.16:29—CD17.16:31
CD17.16:39—CD17.16:43	CD17.16:39—CD17.16:43
CD17.20:1, CD17.20:2	CD17.20:1, CD17.20:2
CD17.20:8.1—CD17.20:12	CD17.20:9—CD17.20:12
CD17.20:17—CD17.20:20.1	CD17.20:17—CD17.20:20.1
CD17.28:3, CD17.28:4	CD17.28:3, CD17.28:4
CD17.36:1, CD17.36:2	CD17.36:1, CD17.36:2
CD17.36:7—CD17.36:10.1	CD17.36:7—CD17.36:10.1
CD17.37:1	CD17.37:1
CD17.40:19—CD17.40:22	CD17.40:19—CD17.40:22.1
ODT:185—ODT:188	ODT:185—ODT:193
CDi:3—CDi:8	CDi:3—CDi:8.1
CDi:25, CDi:26	CDi:25, CDi:26
CDi:33—CDi:36	CDi:33—CDi:36
CDi:49—CDi:58	CDi:49—CDi:58
CDi:71—CDi:78	CDi:71—CDi:78

Remove Old Pages	*Insert New Pages*
CDi:85—CDi:90.3	CDi:85—CDi:90.3
CDi:97, CDi:98	CDi:97—CDi:98.1
CDi:119—CDi:120.1	CDi:119—CDi:120.1
CDi:127—CDi:130	CDi:127—CDi:130

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SUPPLEMENT NO. 25 (3/17)
VOLUMES I AND II
April 2017

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2017-574, approved February 22, 2017.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:39, SH:40	SH:39—SH:46
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.20:3	CD2.20:3
CD2.24:7—CD2.24:9	CD2.24:7—CD2.24:9
CD2.56:5—CD2.56:7	CD2.56:5—CD2.56:7
CD2.62:3—CD2.62:6	CD2.62:3—CD2.62:6
	CD2.190:1
	CD2.213:1—CD2.213:4
CD2.222:1—CD2.222:6	CD2.222:1—CD2.222:6
CD3.08:15—CD3.08:18	CD3.08:15—CD3.08:18
CD4.12:1—CD4.12:6	CD4.12:1—CD4.12:7
CD4.48:1—CD4.48:5	CD4.48:1—CD4.48:5
CD6.26:1—CD6.26:4.1	CD6.26:1—CD6.26:4.1
CD6.26:11—CD6.26:13	CD6.26:11—CD6.26:13
CD6.28:1, CD6.28:2	CD6.28:1
CD6.64:1—CD6.64:5	CD6.64:1—CD6.64:5
CD6.72:1—CD6.72:13	CD6.72:1—CD6.72:15
CD7.08:1—CD7.08:8.1	CD7.08:1—CD7.08:8.1

Remove Old Pages	*Insert New Pages*
CD8.20:1—CD8.20:3	CD8.20:1—CD8.20:3
CD10.60:1—CD10.60:4	CD10.60:1—CD10.60:3
CD11.32:1	CD11.32:1
	VOLUME II
CD12.40:1—CD12.40:5	CD12.40:1—CD12.40:5
CD12.56:1—CD12.56:4	CD12.56:1—CD12.56:4
CD13.00:1	CD13.00:1
	CD13.18:1, CD13.18:2
CD13.20:1—CD13.20:5	CD13.20:1—CD13.20:5
CD15.34:1, CD15.34:2	CD15.34:1, CD15.34:2
CD16.04:3—CD16.04:6	CD16.04:3—CD16.04:6
CD16.24:11—CD16.24:14.2	CD16.24:11—CD16.24:14.2
CD17.00:1	CD17.00:1
CD17.04:3—CD17.04:23	CD17.04:3—CD17.04:27
CD17.08:9—CD17.08:14	CD17.08:9—CD17.08:14
CD17.10:1	CD17.10:1
CD17.16:9—CD17.16:18	CD17.16:9—CD17.16:18.1
CD17.16:29, CD17.16:30	CD17.16:29, CD17.16:30
CD17.16:37—CD17.16:40	CD17.16:37—CD17.16:43
CD17.32:1—CD17.32:18	CD17.32:1—CD17.32:17
CD17.36:5—CD17.36:8	CD17.36:5—CD17.36:8
CD17.37:1	CD17.37:1
CD17.40:1—CD17.40:30	CD17.40:1—CD17.40:36
SR:1—SR:3	SR:1—SR:3
ODT:181—ODT:183	ODT:181—ODT:188
CDi:2.1—CDi:6	CDi:3—CDi:6.1
CDi:21—CDi:22.1	CDi:21—CDi:22.1
CDi:35—CDi:42	CDi:35—CDi:42.1
CDi:49—CDi:52	CDi:49—CDi:52.1
CDi:71, CDi:72	CDi:71, CDi:72
CDi:77—CDi:90	CDi:77—CDi:90.3
CDi:95—CDi:100	CDi:95—CDi:100.1
CDi:106.1	CDi:106.1
CDi:125—CDi:131	CDi:125—CDi:130

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SUPPLEMENT NO. 24 (7/16)
VOLUMES I AND II
September 2016

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2016-264, approved July 6, 2016.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title Page	Title Page
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1—SH:10	SH:1—SH:10
SH:27, SH:28	SH:27, SH:28
SH:33—SH:38	SH:33—SH:40
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
	CD2.30:1
CD2.40:1—CD2.40:5	CD2.40:1—CD2.40:6
CD2.62:3—CD2.62:6	CD2.62:3—CD2.62:6
CD6.00:1	CD6.00:1
CD6.06:1—CD6.06:3	CD6.06:1—CD6.06:3
CD6.12:1, CD6.12:2	CD6.12:1
CD6.26:3, CD6.26:4	CD6.26:3—CD6.26:4.1
CD6.28:1, CD6.28:2	CD6.28:1, CD6.28:2
CD8.04:1—CD8.04:6	CD8.04:1—CD8.04:6
CD10.18:1, CD10.18:2	CD10.18:1, CD10.18:2
CD10.56:1—CD10.56:6	CD10.56:1—CD10.56:6.1
	VOLUME II
Title Page	Title Page
CD12.20:1, CD12.20:2	CD12.20:1, CD12.20:2

Remove Old Pages	*Insert New Pages*
CD12.56:1—CD12.56:3	CD12.56:1—CD12.56:4
CD12.84:1, CD12.84:2	CD12.84:1, CD12.84:2
CD13.20:1—CD13.20:4	CD13.20:1—CD13.20:5
CD13.32:1—CD13.32:4	CD13.32:1—CD13.32:6
CD16.08:1—CD16.08:9	CD16.08:1—CD16.08:9
CD16.28:7—CD16.28:9	CD16.28:7—CD16.28:9
CD17.08:13, CD17.08:14	CD17.08:13, CD17.08:14
CD17.37:1	CD17.37:1
CD17.40:27—CD17.40:30	CD17.40:27—CD17.40:30
ODT:155—ODT:164	ODT:155—ODT:164
ODT:175—ODT:181	ODT:175—ODT:183
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:13, CDi:14	CDi:13, CDi:14
CDi:23, CDi:24	CDi:23, CDi:24
CDi:29—CDi:40	CDi:29—CDi:40.1
CDi:51—CDi:58	CDi:51—CDi:58
CDi:63, CDi:64	CDi:63, CDi:64
CDi:71, CDi:72	CDi:71, CDi:72
CDi:81, CDi:82	CDi:81, CDi:82
CDi:97, CDi:98	CDi:97, CDi:98
CDi:107, CDi:108	CDi:107, CDi:108

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SUPPLEMENT NO. 23 (5/16)
VOLUMES I AND II
May 2016

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2016-176, approved April 20, 2016.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:35, SH:36	SH:35—SH:38
CD2.104:1—CD2.104:3	CD2.104:1—CD2.104:3
CD2.120:1, CD2.120:2	CD2.120:1, CD2.120:2
CD2.132:1—CD2.132:3	CD2.132:1—CD2.132:3
CD2.212:1, CD2.212:2	CD2.212:1, CD2.212:2
CD5.00:1	CD5.00:1
	CD5.06:1—CD5.06:3
CD6.28:1, CD6.28:2	CD6.28:1, CD6.28:2
CD6.75:5—CD6.75:13	CD6.75:5—CD6.75:13
CD7.08:5—CD7.08:8.1	CD7.08:5—CD7.08:8.1
CD10.00:1	CD10.00:1
CD10.28:1—CD10.28:3	CD10.28:1
	VOLUME II
CD16.33:3, CD16.33:4	CD16.33:3, CD16.33:4
CD17.04:3, CD17.04:4	CD17.04:3—CD17.04:4.1
CD17.04:8.1	CD17.04:8.1
CD17.04:23	CD17.04:23
CD17.08:9—CD17.08:14	CD17.08:9—CD17.08:14
CD17.16:7, CD17.16:8	CD17.16:7, CD17.16:8

Remove Old Pages	*Insert New Pages*
ODT:179, ODT:180	ODT:179—ODT:181
CDi:9—CDi:14	CDi:9—CDi:14
CDi:25, CDi:26	CDi:25, CDi:26
CDi:45—CDi:50	CDi:45—CDi:50
CDi:67, CDi:68	CDi:67, CDi:68
CDi:85—CDi:87	CDi:85—CDi:87
CDi:111, CDi:112	CDi:111, CDi:112

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SUPPLEMENT NO. 22 (1/16)
VOLUMES I AND II
April 2016

THE CODE OF THE METROPOLITAN GOVERNMENT OF NASHVILLE AND DAVIDSON COUNTY TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2015-70, approved January 6, 2016.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter is:

Amendment 3, adopted August 6, 2015.

See the Charter and Related Laws Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:29, SH:30	SH:29—SH:36
CH:37, CH:38	CH:37—CH:38.1
CHCT:1	CHCT:1
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.24:7—CD2.24:9	CD2.24:7—CD2.24:9
CD2.112:1, CD2.112:2	CD2.112:1, CD2.112:2
CD2.175:1	CD2.175:1
CD2.176:1—CD2.176:4	CD2.176:1—CD2.176:4
CD3.08:1, CD3.08:2	CD3.08:1—CD3.08:2.1
CD3.08:15—CD3.08:18	CD3.08:15—CD3.08:18
CD7.08:5—CD7.08:8	CD7.08:5—CD7.08:8.1
CD10.64:1—CD10.64:8	CD10.64:1—CD10.64:10
	VOLUME II
CD15.12:1, CD15.12:2	CD15.12:1—CD15.12:2.1
CD15.16:3, CD15.16:4	CD15.16:3, CD15.16:4

Remove Old Pages	*Insert New Pages*
CD15.36:3, CD15.36:4	CD15.36:3, CD15.36:4
CD16.08:1—CD16.08:10	CD16.08:1—CD16.08:9
CD16.12:1—CD16.12:17	CD16.12:1—CD16.12:14
CD16.16:1—CD16.16:18	CD16.16:1—CD16.16:16
CD16.24:1—CD16.24:14.1	CD16.24:1—CD16.24:14.2
CD16.28:1, CD16.28:2	CD16.28:1—CD16.28:2.1
CD17.00:1	CD17.00:1
CD17.04:3—CD17.04:8.1	CD17.04:3—CD17.04:8.1
CD17.04:13—CD17.04:16	CD17.04:13—CD17.04:16.1
CD17.04:19, CD17.04:20	CD17.04:19, CD17.04:20
CD17.04:23	CD17.04:23
CD17.08:1—CD17.08:14	CD17.08:1—CD17.08:14
	CD17.10:1
CD17.12:1—CD17.12:18	CD17.12:1—CD17.12:21
CD17.16:1—CD17.16:28	CD17.16:1—CD17.16:40
CD17.20:1, CD17.20:2	CD17.20:1, CD17.20:2
CD17.20:7, CD17.20:8	CD17.20:7—CD17.20:8.1
CD17.24:15—CD17.24:22	CD17.24:15—CD17.24:22
CD17.28:1—CD17.28:4	CD17.28:1—CD17.28:4
CD17.28:7—CD17.28:9	CD17.28:7—CD17.28:9
CD17.32:1—CD17.32:6	CD17.32:1—CD17.32:6
CD17.32:9—CD17.32:14.2	CD17.32:9—CD17.32:14.1
CD17.36:5—CD17.36:10	CD17.36:5—CD17.36:10.1
CD17.36:17, CD17.36:18	CD17.36:17, CD17.36:18
CD17.40:13—CD17.40:16	CD17.40:13—CD17.40:16.1
CD17.40:25—CD17.40:30	CD17.40:25—CD17.40:30
SR:1—SR:3	SR:1—SR:3
ODT:157—ODT:177	ODT:157—ODT:180
CDi:18.1—CDi:22	CDi:19—CDi:22.1
CDi:43, CDi:44	CDi:43, CDi:44
CDi:63, CDi:64	CDi:63, CDi:64
CDi:69, CDi:70	CDi:69—CDi:70.1
CDi:127—CDi:131	CDi:127—CDi:131

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SUPPLEMENT NO. 21 (7/15)
VOLUMES I AND II
October 2015

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2015-1151, approved July 8, 2015.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:27	SH:27—SH:30
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD3.52:1	CD3.52:1
CD5.12:1—CD5.12:4	CD5.12:1—CD5.12:4
CD5.16:1—CD5.16:4	CD5.16:1—CD5.16:5
	VOLUME II
CD12.42:3—CD12.42:5	CD12.42:3—CD12.42:5
CD12.44:1—CD12.44:3	CD12.44:1—CD12.44:6
CD13.24:3, CD13.24:4	CD13.24:3, CD13.24:4
CD15.16:5—CD16.16:7	CD15.16:5—CD16.16:7
CD16.28:1—CD16.28:8	CD16.28:1—CD16.28:9
CD17.04:17—CD17.04:23	CD17.04:17—CD17.04:23
CD17.08:13, CD17.08:14	CD17.08:13, CD17.08:14
CD17.16:9—CD17.16:16	CD17.16:9—CD17.16:16.1
CD17.40:27—CD17.40:30	CD17.40:27—CD17.40:30
ODT:171—ODT:175	ODT:171—ODT:177
CDi:12.1—CDi:18.1	CDi:13—CDi:18.1
CDi:106.1	CDi:106.1

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SUPPLEMENT NO. 20 (3/15)
VOLUMES I AND II
May 2015

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

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DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2015-1022, approved March 4, 2015.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:23, SH:24	SH:23—SH:27
CD2.212:1, CD2.212:2	CD2.212:1, CD2.212:2
CD3.30:1—CD3.30:8	CD3.30:1—CD3.30:14
CD4.20:1—CD4.20:4	CD4.20:1—CD4.20:4
CD5.24:1	CD5.24:1
CD6.00:1	CD6.00:1
CD6.28:1	CD6.28:1, CD6.28:2
	CD6.73:1—CD6.73:11
CD6.74:1—CD6.74:12	CD6.74:1—CD6.74:14
	CD6.75:1—CD6.75:13
CD8.12:3—CD8.12:6	CD8.12:3—CD8.12:6
CD10.24:1—CD10.24:3	CD10.24:1—CD10.24:3
	VOLUME II
CD13.00:1	CD13.00:1
	CD13.02:1
CD13.04:1, CD13.04:2	CD13.04:1, CD13.04:2
CD13.08:1, CD13.08:2	CD13.08:1, CD13.08:2
CD15.00:1	CD15.00:1
	CD15.02:1

Remove Old Pages	*Insert New Pages*
CD15.04:1, CD15.04:2	CD15.04:1, CD15.04:2
CD15.52:1	CD15.52:1, CD15.52:2
CD15.64:1—CD15.64:12	CD15.64:1—CD15.64:13
CD16.24:10.1—CD16.24:12	CD16.24:11—CD16.24:12.1
CD17.04:1—CD17.04:8	CD17.04:1—CD17.04:8.1
CD17.04:17—CD17.04:23	CD17.04:17—CD17.04:23
CD17.08:7—CD17.08:14	CD17.08:7—CD17.08:14
CD17.16:7—CD17.16:12	CD17.16:7—CD17.16:12.1
CD17.16:25—CD17.16:27	CD17.16:25—CD17.16:28
ODT:171, ODT:172	ODT:171—ODT:175
CDi:1—CDi:12	CDi:1—CDi:12.1
CDi:25—CDi:34	CDi:25—CDi:34.1
CDi:38.1—CDi:78	CDi:39—CDi:78.5
CDi:83—CDi:86	CDi:83—CDi:87
CDi:93—CDi:106	CDi:93—CDi:106.1
CDi:113—CDi:120	CDi:113—CDi:120.1
CDi:127—CDi:130	CDi:127—CDi:131

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SUPPLEMENT NO. 19 (10/14)
VOLUMES I AND II
February 2015

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2014-870, approved September 22, 2014.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:19	SH:19—SH:24
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.78:1	CD2.78:1
CD2.140:1	CD2.140:1
CD2.144:1	CD2.144:1
CD2.224:1	CD2.224:1
CD3.00:1	CD3.00:1
	CD3.14:1, CD3.14:2
CD4.12:1—CD4.12:6	CD4.12:1—CD4.12:6
CD5.04:1—CD5.04.4	CD5.04:1—CD5.04.4
CD5.12:3, CD5.12:4	CD5.12:3, CD5.12:4
CD7.08:1—CD7.08:11	CD7.08:1—CD7.08:12
CD8.12:1—CD8.12:5	CD8.12:1—CD8.12:6
CD10.26:1	CD10.26:1
CD10.60:1—CD10.60:4	CD10.60:1—CD10.60:4
	VOLUME II
CD16.24:9—CD16.24:10.1	CD16.24:9—CD16.24:10.1
CD16.60:1, CD16.60:2	CD16.60:1, CD16.60:2
CD17.04:3—CD17.04:24	CD17.04:3—CD17.04:23
CD17.08:7—CD17.08:14	CD17.08:7—CD17.08:14
CD17.12:1, CD17.12:2	CD17.12:1, CD17.12:2

Remove Old Pages	*Insert New Pages*
CD17.12:7, CD17.12:8	CD17.12:7, CD17.12:8
CD17.16:3—CD17.16:20.6	CD17.16:3—CD17.16:20.11
CD17.20:1, CD17.20:2	CD17.20:1, CD17.20:2
CD17.20:19, CD17.20:20	CD17.20:19—CD17.20:20.1
CD17.36:1, CD17.36:2	CD17.36:1—CD17.36:2.1
CD17.36:19	CD17.36:19, CD17.36:20
CD17.40:17, CD17.40:18	CD17.40:17, CD17.40:18
CD17.40:27—CD17.40:29	CD17.40:27—CD17.40:30
SR:1—SR:3	SR:1—SR:3
ODT:163—ODT:169	ODT:163—ODT:172
CDi:7—CDi:14	CDi:7—CDi:14
CDi:29—CDi:30.1	CDi:29—CDi:30.1
CDi:35, CDi:36	CDi:35—CDi:36.1
CDi:41, CDi:42	CDi:41—CDi:42.1
CDi:47—CDi:50	CDi:47—CDi:50
CDi:55—CDi:70	CDi:55—CDi:70
CDi:77—CDi:88	CDi:77—CDi:86
CDi:99, CDi:100	CDi:99—CDi:100.1
CDi:126.1—CDi:130	CDi:127—CDi:130

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SUPPLEMENT NO. 18 (3/14)
VOLUMES I AND II
June 2014

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2014-658, approved February 5, 2014.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:15, SH:16	SH:15—SH:19
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.24:5—CD2.24:9	CD2.24:5—CD2.24:9
	CD2.149:1
CD2.160:1, CD2.160:2	CD2.160:1, CD2.160:2
	CD2.211:1
CD2.222:7—CD2.222:9	CD2.222:7—CD2.222:9
	CD2.224:1
CD3.08:1—CD3.08:6.1	CD3.08:1—CD3.08:6.1
CD3.16:1—CD3:16:4	CD3.16:1—CD3:16:4
CD3.24:1, CD3.24:2	CD3.24:1, CD3.24:2
CD5.04:3, CD5.04.4	CD5.04:3, CD5.04.4
CD5.32:1—CD5.32:7	CD5.32:1—CD5.32:6
CD6.20:1—CD6.20:10	CD6.20:1—CD6.20:12
CD6.74:3, CD6.74:4	CD6.74:3, CD6.74:4
CD6.80:1—CD6.80:6	CD6.80:1—CD6.80:6.1
CD6.81:1—CD6.81:5	CD6.81:1—CD6.81:5
CD7.08:6.1—CD7.08:11	CD7.08:7—CD7.08:11
CD7.20:1	CD7.20:1

Remove Old Pages	*Insert New Pages*
CD8.12:1—CD8.12:5	CD8.12:1—CD8.12:5
CD10.20:1—CD10.20:13	CD10.20:1—CD10.20:12
CD11.12:3—CD11.12:6	CD11.12:3—CD11.12:6
	VOLUME II
CD12.54:1, CD12.54:2	CD12.54:1, CD12.54:2
CD12.54:7—CD12.54:13	CD12.54:7—CD12.54:13
CD13.24:1, CD13.24:2	CD13.24:1, CD13.24:2
CD13.24:7—CD13.24:11	CD13.24:7—CD13.24:11
CD16.24:9—CD16.24:10.1	CD16.24:9—CD16.24:10.1
CD17.12:1, CD17.12:2	CD17.12:1, CD17.12:2
CD17.12:6.1	CD17.12:6.1
CD17.16:23— CD17.16:28	CD17.16:23—CD17.16:27
CD17.24:15—CD17.24:18	CD17.24:15—CD17.24:18
CD17.32:5, CD17.32:6	CD17.32:5, CD17.32:6
CD17.40:3—CD17.40:6	CD17.40:3—CD17.40:6.1
SRT:1—SRT:3	SR:1—SR:3
ODT:159—ODT:166	ODT:159—ODT:169
CDi:1—CDi:4	CDi:1—CDi:4.1
CDi:23, CDi:24	CDi:23, CDi:24
CDi:29, CDi:30	CDi:29—CDi:30.1
CDi:37, CDi:38	CDi:37—CDi:38.1
CDi:49—CDi:52	CDi:49—CDi:52.1
CDi:61, CDi:62	CDi:61—CDi:62.1
CDi:87, CDi:88	CDi:87, CDi:88
CDi:93—CDi:96	CDi:93—CDi:96.1
CDi:120.1—CDi:126	CDi:121—CDi:126.1

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SUPPLEMENT NO. 17 (7/13)
VOLUMES I AND II
October 2013

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2012-485, passed July 2, 2013, approved July 5, 2013.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title Page	Title Page
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:13	SH:13—SH:16
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
	CD2.212:1, CD2.212:2
CD4.12:3—CD4.12:6	CD4.12:3—CD4.12:6
CD6.00:1	CD6.00:1
CD6.08:1—CD6.08:37	CD6.08:1—CD6.08:20
CD6.64:1, CD6.64:2	CD6.64:1—CD6.64:5
CD7.16:1—CD7.16:6	CD7.16:1—CD7.16:5
CD8.04:1—CD8.04:5	CD8.04:1—CD8.04:6
CD8.12:1—CD8.12:5	CD8.12:1—CD8.12:5
CD10.20:9—CD10.20:13	CD10.20:9—CD10.20:13
CD10.56:17—CD10.56:22	CD10.56:17—CD10.56:22
	VOLUME II
Title Page	Title Page
CD13.20:1—CD13.20:4	CD13.20:1—CD13.20:4
CD13.24:5—CD13.24:10	CD13.24:5—CD13.24:11
CD13.40:1, CD13.40:2	CD13.40:1, CD13.40:2
CD16.60:1—CD16.60:3	CD16.60:1—CD16.60:3

Remove Old Pages	*Insert New Pages*
CD17.08:7—CD17.08:14	CD17.08:7—CD17.08:14
CD17.16:7—CD17.16:14	CD17.16:7—CD17.16:14.3
CD17.28:4.1—CD17.28:8	CD17.28:5—CD17.28:9
CD17.32:4.1—CD17.32:14	CD17.32:5—CD17.32:14.2
CD17.40:25—CD17.40:29	CD17.40:25—CD17.40:29
ODT:89, ODT:90	ODT:89, ODT:90
ODT:159—ODT:164	ODT:159—ODT:166
CDi:1—CDi:14.1	CDi:1—CDi:14
CDi:23—CDi:56	CDi:23—CDi:56
CDi:63, CDi:64	CDi:63—CDi:64.1
CDi:71—CDi:86	CDi:71—CDi:84
CDi:91—CDi:94	CDi:91—CDi:94

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SUPPLEMENT NO. 16 (2/13)
VOLUMES I AND II
April 2013

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2012-336, passed January 15, 2013, approved January 16, 2013.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter is:

Ordinance No. RS2012-227, adopted September 18, 2012, Election of November 6, 2012.

See the Charter and Related Laws Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11—SH:13
CH:5, CH:6	CH:5, CH:6
CH:40.1—CH:44	CH:41—CH:44.1
CH:65—CH:66.1	CH:65—CH:66.1
CH:80.1—CH:84	CH:81—CH:84.1
CHCT:1	CHCT:1
CD1.16:1, CD1.16:2	CD1.16:1
CD1.24:1, CD1.24:2	CD1.24:1, CD1.24:2
CD2.44:1—CD2.44:6	CD2.44:1—CD2.44:7
CD2.100:1, CD2.100:2	CD2.100:1, CD2.100:2
CD3.08:5—CD3.08:6.1	CD3.08:5—CD3.08:6.1
CD4.20:3, CD4.20:4	CD4.20:3, CD4.20:4
CD4.46:5, CD4.46:6	CD4.46:5—CD4.46:6.1

Remove Old Pages	*Insert New Pages*
CD6.00:1	CD6.00:1
CD6.16:1, CD6.16:2	CD6.16:1
CD6.40:1	CD6.40:1
CD6.56:1	CD6.56:1
CD6.64:1—CD6.64:10	CD6.64:1, CD6.64:2
CD6.72:1, CD6.72:2	CD6.72:1—CD6.72:2.1
CD6.80:9—CD6.80:14	CD6.80:9—CD6.80:14
CD10.00:1	CD10.00:1
CD10.76:1—CD10.76:4	CD10.76:1
CD11.16:1, CD11.16:2	CD11.16:1, CD11.16:2
CD11.24:1, CD11.24:2	CD11.24:1, CD11.24:2
	VOLUME II
CD12.04:1, CD12.04:2	CD12.04:1, CD12.04:2
CD12.04:7, CD12.04:8	CD12.04:7, CD12.04:8
CD12.20:1, CD12.20:2	CD12.20:1, CD12.20:2
CD12.54:1, CD12.54:2	CD12.54:1, CD12.54:2
CD13.00:1	CD13.00:1
CD13.08:1—CD13.08:6	CD13.08:1—CD13.08:7
CD13.24:3, CD13.24:4	CD13.24:3, CD13.24:4
CD13.32:1—CD13.32:5	CD13.32:1—CD13.32:4
CD13.36:1—CD13.36:4	CD13.36:1
CD15.12:1—CD15.12:6	CD15.12:1—CD15.12:6
CD15.16:3—CD15.16:6	CD15.16:3—CD16.16:7
CD15.32:1—CD15.32:5	CD15.32:1—CD15.32:5
CD15.44:3, CD15.44:4	CD15.44:3, CD15.44:4
CD15.48:1—CD15.48:6	CD15.48:1—CD15.48:5
CD15.64:9—CD15.64:12	CD15.64:9—CD15.64:12
CD16.04:3—CD16.04:6	CD16.04:3—CD16.04:6
CD17.04:15, CD17.04:16	CD17.04:15—CD17.04:16.1
CD17.04:23, CD17.04:24	CD17.04:23, CD17.04:24
CD17.08:9—CD17.08:14	CD17.08:9—CD17.08:14
CD17.16:7—CD17.16:10.1	CD17.16:7—CD17.16:10.1
CD17.40:1—CD17.40:8.2	CD17.40:1—CD17.40:8.3
CD17.40:16.1—CD17.40:20	CD17.40:17—CD17.40:20.1
ODT:161, ODT:162	ODT:161—ODT:164
CHi:11, CHi:12	CHi:11, CHi:12
CHi:15, CHi:16	CHi:15, CHi:16
CDi:5—CDi:10	CDi:5—CDi:10
CDi:13, CDi:14	CDi:13—CDi:14.1
CDi:23—CDi:28	CDi:23—CDi:28

Remove Old Pages	*Insert New Pages*
CDi:31, CDi:32	CDi:31, CDi:32
CDi:35—CDi:36.1	CDi:35, CDi:36
CDi:39—CDi:46	CDi:39—CDi:46
CDi:49—CDi:58	CDi:49—CDi:58.1
CDi:61—CDi:76	CDi:61—CDi:75
CDi:81—CDi:86	CDi:81—CDi:86
CDi:91—CDi:94	CDi:91—CDi:94
CDi:97—CDi:104	CDi:97—CDi:104
CDi:109—CDi:112	CDi:109—CDi:112
CDi:123, CDi:124	CDi:123, CDi:124

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SUPPLEMENT NO. 15 (10/12)
VOLUMES I AND II
January 2013

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2012-252, passed October 2, 2012, approved October 3, 2012.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7—SH:11
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.64:1, CD2.64:2	CD2.64:1, CD2.64:2
CD2.222:3, CD2.222:4	CD2.222:3, CD2.222:4
CD3.08:9—CD3.08:12	CD3.08:9—CD3.08:12
CD3.12:1—CD3.12:3	CD3.12:1—CD3.12:3
CD3.16:1—CD3.16:3	CD3.16:1—CD3:16:4
CD3.24:1, CD3.24:2	CD3.24:1, CD3.24:2
CD3.28:3, CD3.28:4	CD3.28:3—CD3.28:5
CD3.29:3—CD3.29:5	CD3.29:3—CD3.29:5
CD3.32:1	CD3.32:1, CD3.32:2
CD3.33:1, CD3.33:2	CD3.33:1, CD3.33:2
CD3.36:1, CD3.36:2	CD3.36:1, CD3.36:2
CD3.37:1, CD3.37:2	CD3.37:1, CD3.37:2
CD5.04:1—CD5.04:3	CD5.04:1—CD5.04.4
CD5.12:1—CD5.12:4	CD5.12:1—CD5.12:4
CD5.16:1—CD5.16:5	CD5.16:1—CD5.16:4
CD5.20:1, CD5.20:2	CD5.20:1, CD5.20:2
CD5.32:5, CD5.32:6	CD5.32:5—CD5.32:7

Remove Old Pages	*Insert New Pages*
CD7.12:1, CD7.12:2	CD7.12:1, CD7.12:2
CD8.12:1—CD8.12:4	CD8.12:1—CD8.12:5
	VOLUME II
CD12.44:1—CD12.44:3	CD12.44:1—CD12.44:3
CD15.44:3, CD15.44:4	CD15.44:3, CD15.44:4
CD15.64:5—CD15.64:12	CD15.64:5—CD15.64:12
CD17.04:5—CD17.04:24	CD17.04:5—CD17.04:24
CD17.08:7—CD17.08:13	CD17.08:7—CD17.08:14
CD17.12:1, CD17.12:2	CD17.12:1, CD17.12:2
CD17.12:5, CD17.12:6	CD17.12:5—CD17.12:6.1
CD17.12:10.1—CD17.12:14	CD17.12:11—CD17.12:14.2
CD17.16:7—CD17.16:10	CD17.16:7—CD17.16:10.1
CD17.16:17, CD17.16:18	CD17.16:17—CD17.16:18.1
CD17.16:27	CD17.16:27, , CD17.16:28
CD17.32:3, CD17.32:4	CD17.32:3—CD17.32:4.1
CD17.40:19, CD17.40:20	CD17.40:19, CD17.40:20
CD17.40:29	CD17.40:29
SRT:1, SRT:2	SRT:1—SRT:3
ODT:151—ODT:154	ODT:151—ODT:154
ODT:159, ODT:160	ODT:159—ODT:162
CDi:13, CDi:14	CDi:13, CDi:14
CDi:47, CDi:48	CDi:47—CDi:48.1
CDi:66.1—CDi:70	CDi:67—CDi:70.1
CDi:87—CDi:92	CDi:87—CDi:92.1

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SUPPLEMENT NO. 14 (5/12)
VOLUMES I AND II
June 2012

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2012-125, passed April 17, 2012, approved April 19, 2012.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7, SH:8
CD2.04:1, CD2.04:2	CD2.04:1, CD2.04:2
CD2.222:3—CD2.222:9	CD2.222:3—CD2.222:9
CD7.20:1	CD7.20:1
CD10.00:1	CD10.00:1
CD10.18:1	CD10.18:1, CD10:18.2
	CD10.90:1
	VOLUME II
CD12.40:1—CD12.40:5	CD12.40:1—CD12.40:5
CD17.40:19—CD17.40:29	CD17.40:19—CD17.40:29
SRT:1, SRT:2	SRT:1, SRT:2
ODT:157—ODT:159	ODT:157—ODT:160
CDi:31, CDi:32	CDi:31, CDi:32
CDi:47—CDi:54.1	CDi:47—CDi:54.1
CDi:91—CDi:94	CDi:91—CDi:94
CDi:105, CDi:106	CDi:105, CDi:106

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SUPPLEMENT NO. 13 (1/12)
VOLUMES I AND II
March 2012

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2011-81, passed January 17, 2012, approved January 18, 2012.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1—SH:6	SH:1—SH:7
CDA:15—CDA:37	CHA:15—CHA:37
CD1.01:1—CD1.01:3	CD1.01:1—CD1.01:3
CD2.222:3, CD2.222:4	CD2.222:3—CD2.222:4.1
CD4.00:1	CD4.00:1
CD4.44:1, CD4.44:2	CD4.44:1, CD4.44:2
CD5.14:1, CD5.14:2	CD5.14:1, CD5.14:2
CD5.16:1—CD5.16:4	CD5.16:1—CD5.16:5
CD5.24:1	CD5.24:1
CD7.16:3—CD7.16:5	CD7.16:3—CD7.16:6
CD8.12:1—CD8.12:3	CD8.12:1—CD8.12:4
CD10.28:1—CD10.28:3	CD10.28:1—CD10.28:3
CD11.12:3—CD11.12:5	CD11.12:3—CD11.12:6
VOLUME II	
CD15.64:9—CD15.64:12	CD15.64:9—CD15.64:12
CD17.04:4.1—CD17.04:8	CD17.04:5—CD17.04:8.1
CD17.04:23, CD17.04:24	CD17.04:23, CD17.04:24
CD17.08:7—CD17.08:13	CD17.08:7—CD17.08:13
CD17.12:1—CD17.12:4	CD17.12:1—CD17.12:4

Remove Old Pages	*Insert New Pages*
CD17.16:3—CD17.16:6	CD17.16:3—CD17.16:6
CD17.16:20.7—CD17.16:27	CD17.16:21—CD17.16:27
ODT:157, ODT:158	ODT:157—ODT:159
CDi:33, CDi:34	CDi:33, CDi:34
CDi:77, CDi:78	CDi:77, CDi:78
CDi:111—CDi:114	CDi:111—CDi:114

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SUPPLEMENT NO. 12 (10/11)
VOLUMES I AND II
November 2011

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2011-970, passed August 16, 2011, August 19, 2011.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter and Related Laws is:

Ordinance No. BL2011-902, Amendment 1, adopted August 4, 2011.

See the Charter and Related Laws Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
Table of Contents	Table of Contents
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1—SH:3	SH:1—SH:6
CH:59, CH:60	CH:59—CH:60.1
CHA:15—CHA:42	CHA:15—CHA:37
CHCT:1	CHCT:1
CD1.01:1, CD1.01:2	CD1.01:1—CD1.01:3
CD2.20:1—CD2.20:3	CD2.20:1—CD2.20:3
CD2.32:1	CD2.32:1, CD2.32:2
CD2.222:3—CD2.222:9	CD2.222:3—CD2.222:9
CD4.28:1	CD4.28:1, CD4.28:2
CD6.04:1—CD6.04:3	CD6.04:1—CD6.04:3
CD6.72:3, CD6.72:4	CD6.72:3, CD6.72:4
CD6.80:8.1—CD6.80:14	CD6.80:9—CD6.80:14
CD7.16:1—CD7.16:5	CD7.16:1—CD7.16:5
CD10.00:1	CD10.00:1

Remove Old Pages	*Insert New Pages*
CD10.20:1, CD10.20:2	CD10.20:1, CD10.20:2
CD10.20:9—CD10.20:13	CD10.20:9—CD10.20:13
	CD10.57:1
CD10.68:1, CD10.68:2	CD10.68:1, CD10.68:2
CD11.28:1—CD11.28:6	CD11.28:1—CD11.28:5
VOLUME II	
Table of Contents	Table of Contents
CD12.41:1, CD12.41:2	CD12.41:1—CD12.41:4
CD12.44:1—CD12.44:3	CD12.44:1—CD12.44:3
CD15.12:1, CD15.12:2	CD15.12:1, CD15.12:2
CD15.64:1—CD15.64:12	CD15.64:1—CD15.64:12
CD16.20:3—CD16.20:8	CD16.20:3—CD16.20:8
CD17.04:3, CD17.04:4	CD17.04:3—CD17.04:4.1
CD17.04:13—CD17.04:24	CD17.04:13—CD17.04:24
CD17.08:1—CD17.08:13	CD17.08:1—CD17.08:13
CD17.12:1—CD17.12:10	CD17.12:1—CD17.12:10.1
CD17.16:3—CD17.16:20.1	CD17.16:3—CD17.16:20.7
CD17.20:7—CD17.20:14	CD17.20:7—CD17.20:14.1
CD17.24:15—CD17.24:18	CD17.24:15—CD17.24:18
CD17.28:1—CD17.28:4.1	CD17.28:1—CD17.28:4.1
CD17.32:1—CD17.32:12	CD17.32:1—CD17.32:12.2
CD17.40:13—CD17.40:16	CD17.40:13—CD17.40:16.1
CD17.40:24.1—CD17.40:28	CD17.40:25—CD17.40:29
ODT:1—ODT:6	ODT:1—ODT:6.1
ODT:136.1—ODT:155	ODT:137—ODT:158
CDi:16.1—CDi:18	CDi:17—CDi:18.1
CDi:23, CDi:24	CDi:23—CDi:24.1
CDi:41—CDi:54	CDi:41—CDi:54.1
CDi:59, CDi:60	CDi:59, CDi:60
CDi:64.1—CDi:66	CDi:65—CDi:66.1
CDi:71, CDi:72	CDi:71, CDi:72
CDi:77—CDi:84.1	CDi:77—CDi:84.1
CDi:93, CDi:94	CDi:93, CDi:94
CDi:103—CDi:112	CDi:103—CDi:112
CDi:119, CDi:120	CDi:119—CDi:120.1
CDi:129, CDi:130	CDi:129, CDi:130

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SUPPLEMENT NO. 11 (04/11)
VOLUMES I AND II
May 2011

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2011-854, passed March 15, 2011, approved March 22, 2011.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
ix, x	
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1, SH:2	SH:1—SH:3 (following Checklist of Up-to-Date Pages)
CD1.01:1, CD1.01:2	CD1.01:1, CD1.01:2
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
	CD2.78:1
CD2.128:1, CD2.128:2	CD2.128:1, CD2.128:2
CD2.196:1—CD2.196:4	CD2.196:1—CD2.196:4
CD2.210:1, CD2.210:2	CD2.210:1, CD2.210:2
CD4.20:1—CD4.20:4	CD4.20:1—CD4.20:4
CD11.24:1, CD11.24:2	CD11.24:1, CD11.24:2
	VOLUME II
CD17.04:21—CD17.04:24	CD17.04:21—CD17.04:24
CD17.32:3—CD17.32:6	CD17.32:3—CD17.32:6
ODT:151—ODT:153	ODT:151—ODT:155
CDi:1, CDi:2	CDi:1, CDi:2
CDi:13, CDi:14	CDi:13, CDi:14

Remove Old Pages	*Insert New Pages*
CDi:34.1—CDi:36	CDi:35—CDi:36.1
CDi:39, CDi:40	CDi:39, CDi:40
CDi:57, CDi:58	CDi:57, CDi:58
CDi:63, CDi:64	CDi:63—CDi:64.1
CDi:79—CDi:84	CDi:79—CDi:84.1

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SUPPLEMENT NO. 10 (01/11)
VOLUMES I AND II
March 2011

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

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DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2010-797, passed December 7, 2010.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter and Related Laws is:

Resolution No. RS2010-1119(Amdt. 1), adopted November 2, 2010.

See the Charter and Related Laws Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
	ix, x
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
	SH:1, SH:2 (following Checklist of Up-To-Date Pages)
CH:65, CH:66	CH:65—CH:66.1
CHA:15, CHA:16	CHA:15, CHA:16
CHCT:1	CHCT:1
CD1.01:1, CD1.01:2	CD1.01:1, CD1.01:2
CD1.24:1, CD1.24:2	CD1.24:1, CD1.24:2
CD5.20:1, CD5.20:2	CD5.20:1, CD5.20:2
CD5.32:5—CD5.32:7	CD5.32:5, CD5.32:6
CD6.72:13, CD6.72:14	CD6.72:13
CD6.74:11—CD6.74:13	CD6.74:11, CD6.74:12
CD6.80:13, CD6.80:14	CD6.80:13, CD6.80:14
CD6.81:1—CD6.81:5	CD6.81:1—CD6.81:5

Remove Old Pages	*Insert New Pages*
CD7.08:5—CD7.08:6.1	CD7.08:5—CD7.08:6.1
CD7.16:1, CD7.16:2	CD7.16:1—CD7.16:2.1
CD8.04:1—CD8.04:4	CD8.04:1—CD8.04:5
CD10.28:1—CD10.28:3	CD10.28:1—CD10.28:3
CD11.26:1, CD11.26:2	CD11.26:1, CD11.26:2
	VOLUME II
CD12.08:3—CD12.08:6	CD12.08:3—CD12.08:6
CD12.32:1, CD12.32:2	CD12.32:1—CD12.32:3
CD12.36:1—CD12.36:3	CD12.36:1—CD12.36:3
CD12.40:1—CD12.40:5	CD12.40:1—CD12.40:5
CD12.41:1—CD12.41:3	CD12.41:1, CD12.41:2
CD12.42:3—CD12.42:5	CD12.42:3—CD12.42:5
CD12.44:1, CD12.44:2	CD12.44:1—CD12.44:3
CD12.54:7, CD12.54:8	CD12.54:7, CD12.54:8
CD12.84:1—CD12.84:3	CD12.84:1, CD12.84:2
CD13.08:1, CD13.08:2	CD13.08:1—CD13.08:2.1
CD13.40:1, CD13.40:2	CD13.40:1, CD13.40:2
CD15.64:3—CD15.64:11	CD15.64:3—CD15.64:12
CD16.12:13, CD16.12:14	CD16.12:13—CD16.12:14.1
CD16.16:15, CD16.16:16	CD16.16:15—CD16.16:16.1
CD16.20:13—CD16.20:16	CD16.20:13—CD16.20:16
CD16.24:9, CD16.24:10	CD16.24:9—CD16.24:10.1
CD16.28:3, CD16.28:4	CD16.28:3—CD16.28:4.1
CD17.04:21—CD17.04:24	CD17.04:21—CD17.04:24
CD17.08:9—CD17.08:13	CD17.08:9—CD17.08:13
CD17.16:12.1—CD17.16:12.5	CD17.16:12.1—CD17.16:12.6
CD17.40:27, CD17.40:28	CD17.40:27, CD17.40:28
ODT:149—ODT:152	ODT:149—ODT:153
CDi:7, CDi:8	CDi:7, CDi:8
CDi:13—CDi:16	CDi:13—CDi:16.1
CDi:33, CDi:34	CDi:33—CDi:34.1
CDi:45, CDi:46	CDi:45, CDi:46
CDi:97, CDi:98	CDi:97, CDi:98
CDi:103—CDi:110	CDi:103—CDi:110

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SUPPLEMENT NO. 9, (09/10)
VOLUMES I AND II
September 2010

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2010-730, passed August 17, 2010, approved August 18, 2010.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter and Related Laws is:

Ordinance No. BL2009-582, adopted December 18, 2009.

See the Charter and Related Laws Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CH:59, CH:60	CH:59, CH:60
CH:79, CH:80	CH:79—CH:80.1
CHA:15, CHA:16	CHA:15, CHA:16
CHCT:1	CHCT:1
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.04:1, CD2.04:2	CD2.04:1, CD2.04:2
CD2.56:1—CD2.56:7	CD2.56:1—CD2.56:7
CD2.76:3	CD2.76:3
CD2.80:1, CD2.80:2	CD2.80:1, CD2.80:2
CD2.84:3	CD2.84:3
CD2.92:1—CD2.92:3	CD2.92:1—CD2.92:3
CD2.124:1	CD2.124:1
CD5.04:1—CD5.04:3	CD5.04:1—CD5.04:3
CD5.20:1, CD5.20:2	CD5.20:1, CD5.20:2

Remove Old Pages	*Insert New Pages*
CD5.24:1	CD5.24:1
CD6.00:1	CD6.00:1
	CD6.42:1
	CD6.74:1—CD6.74:13
CD6.80:1—CD6.80:8.1	CD6.80:1—CD6.80:8.1
CD7.08:5, CD7.08:6	CD7.08:5—CD7.08:6.1
CD7.16:3—CD7.16:5	CD7.16:3—CD7.16:5
CD10.00:1	CD10.00:1
CD10.20:1—CD10.20:13	CD10.20:1—CD10.20:13
	VOLUME II
CD12.40:1, CD12.40:2	CD12.40:1—CD12.40:2.1
CD15.04:1—CD15.04:5	CD15.04:1—CD15.04:8
CD15.60:1—CD15.60:16	CD15.60:1—CD15.60:24
CD15.64:11	CD15.64:11
CD16.08:3—CD16.08:6	CD16.08:3—CD16.08:6.1
CD16.12:1, CD16.12:2	CD16.12:1, CD16.12:2
CD16.12:13—CD16.12:17	CD16.12:13—CD16.12:17
CD16.16:1—CD16.16:18	CD16.16:1—CD16.16:18
CD16.20:1, CD16.20:2	CD16.20:1, CD16.20:2
CD16.20:13—CD16.20:16	CD16.20:13—CD16.20:16
CD16.24:9—CD16.24:14	CD16.24:9—CD16.24:14.1
CD16.24:19, CD16.24:20	CD16.24:19, CD16.24:20
CD16.28:1—CD16.28:8	CD16.28:1—CD16.28:8
CD17.04:5—CD17.04:10	CD17.04:5—CD17.04:10
CD17.04:17, CD17.04:18	CD17.04:17—CD17.04:18.1
CD17.04:23, CD17.04:24	CD17.04:23, CD17.04:24
CD17.08:7, CD17.08:8	CD17.08:7, CD17.08:8
CD17.08:11—CD17.08:13	CD17.08:11—CD17.08:13
CD17.16:10.1—CD17.16:12	CD17.16:11—CD17.16:12.5
CD17.16:19, CD17.16:20	CD17.16:19—CD17.16:20.1
CD17.32:3—CD17.32:6.1	CD17.32:3—CD17.32:6.1
ODT:103, ODT:104	ODT:103, ODT:104
ODT:125, ODT:126	ODT:125, ODT:126
ODT:135, ODT:136	ODT:135—ODT:136.1
ODT:149, ODT:150	ODT:149—ODT:152
CDi:1—CDi:118	CDi:1—CDi:130

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SUPPLEMENT NO. 8, (03/10)
VOLUMES I AND II
July 2010

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2010-616, passed February 16, 2010, approved February 19, 2010.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD1.01:1, CD1.01:2	CD1.01:1, CD1.01:2
CD5.00:1	CD5.00:1
	CD5.14:1, CD5.14:2
CD5.16:3, CD5.16:4	CD5.16:3, CD5.16:4
CD6.00:1	CD6.00:1
CD6.08:21—CD6.08:24	CD6.08:21—CD6.08:24.1
CD6.10:1, CD6.10:2	CD6.10:1
CD6.54:1, CD6.54:2	CD6.54:1—CD6.54:2.1
CD6.80:7—CD6.80:8.1	CD6.80:7—CD6.80:8.1
	CD6.81:1—CD6.81:5
CD7.08:1—CD7.08:6	CD7.08:1—CD7.08:6
CD8.12:1—CD8.12:3	CD8.12:1—CD8.12:3
CD10.00:1	CD10.00:1
	CD10.30:1, CD10.30:2
CD10.64:5, CD10.64:6	CD10.64:5—CD10.64:6.1
CD11.12:3—CD11.12:5	CD11.12:3—CD11.12:5
CD11.20:1—CD11.20:4	CD11.20:1—CD11.20:4
	VOLUME II
CD12.40:1—CD12.40:4	CD12.40:1—CD12.40:5

Remove Old Pages	*Insert New Pages*
CD13.08:3—CD13.08:6	CD13.08:3—CD13.08:6
CD16.08:9, CD16.08:10	CD16.08:9, CD16.08:10
CD16.24:9, CD16.24:10	CD16.24:9—CD16.24:10.1
CD16.28:1—CD16.28:8	CD16.28:1—CD16.28:8
CD17.00:1	CD17.00:1
CD17.04:1—CD17.04:22	CD17.04:1—CD17.04:24
CD17.08:1—CD17.08:13	CD17.08:1—CD17.08:13
CD17.12:1—CD17.12:18	CD17.12:1—CD17.12:18
CD17.16:1—CD17.16:10.4	CD17.16:1—CD17.16:10.4
CD17.16:17, CD17.16:18	CD17.16:17, CD17.16:18
CD17.20:1, CD17.20:2	CD17.20:1, CD17.20:2
CD17.20:7—CD17.20:10.1	CD17.20:7—CD17.20:10.1
CD17.24:1, CD17.24:2	CD17.24:1, CD17.24:2
CD17.24:11—CD17.24:14	CD17.24:11—CD17.24:14
CD17.28:3, CD17.28:4	CD17.28:3, CD17.28:4
CD17.32:1, CD17.32:2	CD17.32:1, CD17.32:2
CD17.32:11, CD17.32:12	CD17.32:11, CD17.32:12
CD17.36:19	CD17.36:19
	CD17.37:1
CD17.40:13—CD17.40:24	CD17.40:13—CD17.40:24.1
ODT:135—ODT:148	ODT:135—ODT:150
CDi:7—CDi:10.1	CDi:7—CDi:10.1
CDi:13—CDi:16	CDi:13—CDi:16.1
CDi:23, CDi:24	CDi:23, CDi:24
CDi:31—CDi:36	CDi:31—CDi:36
CDi:39, CDi:40	CDi:39—CDi:40.1
CDi:44.1—CDi:48	CDi:45—CDi:48.2
CDi:51—CDi:52.1	CDi:51—CDi:52.1
CDi:56.1—CDi:60	CDi:57—CDi:60.1
CDi:69, CDi:70	CDi:69, CDi:70
CDi:73—CDi:74.1	CDi:73—CDi:74.1
CDi:77—CDi:82.1	CDi:77—CDi:82.1
CDi:91—CDi:96	CDi:91—CDi:96.1
CDi:101, CDi:102	CDi:101, CDi:102
CDi:114.1—CDi:118	CDi:115—CDi:118

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SUPPLEMENT NO. 7, (09/09)
VOLUMES I AND II
December 2009

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND

DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2009-508, passed August 18, 2009, approved August 24, 2009.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove old pages	*Insert new pages*
VOLUME I	
Table of Contents	Table of Contents
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD1.01:1, CD1.01:2	CD1.01:1, CD1.01:2
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.160:1	CD2.160:1, CD2.160:2
CD4.20:1—CD4.20:4	CD4.20:1—CD4.20:4
CD7.08:1—CD7.08:10	CD7.08:1—CD7.08:11
CD10.64:1—CD10.64:7	CD10.64:1—CD10.64:8
VOLUME II	
Table of Contents	Table of Contents
CD13.24:9, CD13.24:10	CD13.24:9, CD13.24:10
CD17.04:3—CD17.04:8	CD17.04:3—CD17.04:7
CD17.04:14.1—CD17.04:22	CD17.04:15—CD17.04:22
CD17.08:7—CD17.08:12	CD17.08:7—CD17.08:13
CD17.16:8.1—CD17.16:10	CD17.16:9—CD17.16:10.4
CD17.16:21—CD17.16:26	CD17.16:21—CD17.16:27
CD17.32:3—CD17.32:6.1	CD17.32:3—CD17.32:6.1

Remove old pages	*Insert new pages*
ODT:145—ODT:147	ODT:145—ODT:148
CDi:1, CDi:2	CDi:1, CDi:2
CDi:8.1—CDi:10.1	CDi:9—CDi:10.1
CDi:27, CDi:28	CDi:27, CDi:28
CDi:32.1—CDi:36	CDi:33—CDi:36
CDi:41, CDi:42	CDi:41—CDi:42.1
CDi:55, CDi:56	CDi:55—CDi:56.1
CDi:61—CDi:62.1	CDi:61—CDi:62.1
CDi:69, CDi:70	CDi:69, CDi:70
CDi:91, CDi:92	CDi:91—CDi:92.1

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SUPPLEMENT NO. 6 (07/09)
VOLUMES I AND II
August 2009

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2009-466, passed June 9, 2009, approved June 10, 2009.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove old pages	*Insert new pages*
VOLUME I	
Table of Contents	Table of Contents
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD1.16:1, CD1.16:2	CD1.16:1, CD1.16:2
CD2.100:1, CD2.100:2	CD2.100:1, CD2.100:2
CD6.04:1, CD6.04:2	CD6.04:1—CD6.04:3
CD6.72:7, CD6.72:8	CD6.72:7, CD6.72:8
CD6.80:7, CD6.80:8	CD6.80:7—CD6.80:8.1
CD8.12:1—CD8.12:3	CD8.12:1—CD8.12:3
VOLUME II	
Table of Contents	Table of Contents
CD12.08:3—CD12.08:6	CD12.08:3—CD12.08:6
CD15.64:9—CD15.64:11	CD15.64:9—CD15.64:11
CD16.20:1—CD16.20:8	CD16.20:1—CD16.20:8
CD17.04:13, CD17.04:14	CD17.04:13—CD17.04:14.1
CD17.04:21, CD17.04:22	CD17.04:21, CD17.04:22
ODT:145, ODT:146	ODT:145—ODT:147
CDi:3—CDi:8	CDi:3—CDi:8.1
CDi:15, CDi:16	CDi:15, CDi:16

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SUPPLEMENT NO. 5 (04/09)
VOLUMES I AND II
May 2009

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2009-407, passed March 17, 2009, approved March 27, 2009.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter is:

Resolution No. 2008-404, adopted November 4, 2008.

See the Charter and Related Laws Comparative Table—Volume I for further information.

Remove old pages	*Insert new pages*
VOLUME I	
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CH:17, CH:18	CH:17, CH:18
CH:23—CH:26.1	CH:23—CH:26.1
CHCT:1	CHCT:1
CD1.01:1, CD1.01:2	CD1.01:1, CD1.01:2
CD2.44:5, CD2.44:6	CD2.44:5, CD2.44:6
CD2.128:1, CD2.128:2	CD2.128:1, CD2.128:2
CD2.222:1, CD2.222:2	CD2.222:1, CD2.222:2
CD3.00:1	CD3.00:1
	CD3.05:1, CD3.05:2
CD3.40:3—CD3.40:5	CD3.40:3—CD3.40:6
CD6.06:1—CD6.06:3	CD6.06:1—CD6.06:3
CD6.52:1—CD6.52:6	CD6.52:1—CD6.52:6
CD7.08:3—CD7.08:10	CD7.08:3—CD7.08:10
CD8.04:3, CD8.04:4	CD8.04:3, CD8.04:4
CD10.18:1	CD10.18:1
CD10.64:5—CD10.64:7	CD10.64:5—CD10.64:7
CD11.12:3—CD11.12:5	CD11.12:3—CD11.12:5

Remove old pages	*Insert new pages*
VOLUME II	
CD12.40:1—CD12.40:4	CD12.40:1—CD12.40:4
CD12.60:1—CD12.60:3	CD12.60:1—CD12.60:3
CD15.20:1—CD15.20:3	CD15.20:1—CD15.20:3
CD15.32:1—CD15.32:5	CD15.32:1—CD15.32:5
CD15.36:1—CD15.36:4	CD15.36:1—CD15.36:4
CD15.44:1—CD15.44:4	CD15.44:1—CD15.44:4
CD15.64:1—CD15.64:9	CD15.64:1—CD15.64:11
CD17.04:3—CD17.04:8	CD17.04:3—CD17.04:8
CD17.04:15—CD17.04:22	CD17.04:15—CD17.04:22
CD17.08:7—CD17.08:12	CD17.08:7—CD17.08:12
CD17.16:5—CD17.16:8.1	CD17.16:5—CD17.16:8.1
CD17.20:1—CD17.20:10	CD17.20:1—CD17.20:10.1
CD17.24:1—CD17.24:6	CD17.24:1—CD17.24:6.1
CD17.40:1—CD17.40:4.1	CD17.40:1—CD17.40:4.1
CD17.40:15, CD17.40:16	CD17.40:15—CD17.40:16.1
CD17.40:27, CD17.40:28	CD17.40:27, CD17.40:28
ODT:141—ODT:144	ODT:141—ODT:146
CDi:5—CDi:6.1	CDi:5, CDi:6
CDi:57—CDi:62	CDi:57—CDi:62.1
CDi:107, CDi:108	CDi:107, CDi:108

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SUPPLEMENT NO. 4 (10/08)
VOLUMES I AND II
December 2008

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2008-284, passed October 7, 2008, approved October 14, 2008.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove old pages	*Insert new pages*
VOLUME I	
Table of Contents	Table of Contents
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD1.01:1, CD1.01:2	CD1.01:1, CD1.01:2
CD2.56:3, CD2.56:4	CD2.56:3, CD2.56:4
CD2.176:3, CD2.176:4	CD2.176:3, CD2.176:4
CD3.08:1—CD3.08:6	CD3.08:1—CD3.08:6.1
CD3.12:1, CD3.12:2	CD3.12:1—CD3.12:3
CD3.16:1—CD3.16:3	CD3.16:1—CD3.16:3
CD3.24:1	CD3.24:1, CD3.24:2
CD4.00:1	CD4.00:1
	CD4.46:1—CD4.46:10
CD5.04:1—CD5.04:4	CD5.04:1—CD5.04:3
CD5.12:3	CD5.12:3, CD5.12:4
CD5.16:1—CD5.16:4	CD5.16:1—CD5.16:4
CD6.06:1—CD6.06:3	CD6.06:1—CD6.06:3
CD6.80:1, CD6.80:2	CD6.80:1—CD6.80:2.1
CD6:80.6.1—CD6.80:14	CD6.80:7—CD6.80:14
CD11.12:1—CD11.12:4	CD11.12:1—CD11.12:5
CD11.28:1, CD11.28:2	CD11.28:1—CD11.28:2.1
VOLUME II	
Table of Contents	Table of Contents
CD15.20:1, CD15.20:2	CD15.20:1—CD15.20:3

Remove old pages	*Insert new pages*
CD15.36:1—CD15.36:4	CD15.36:1—CD15.36:4
CD15.68:1, CD15.68:2	CD15.68:1, CD15.68:2
CD16.24:10.1—CD16.24:12	CD16.24:11—CD16.24:12.1
CD16.36:1	CD16.36:1, CD16.36:2
CD17.04:3—CD17.04:8	CD17.04:3—CD17.04:8
CD17.04:13, CD17.04:14	CD17.04:13, CD17.04:14
CD17.04:21, CD17.04:22	CD17.04:21, CD17.04:22
CD17.08:7—CD17.08:12	CD17.08:7—CD17.08:12
CD17.12:13—CD17.12:18	CD17.12:13—CD17.12:18
CD17.16:5—CD17.16:8.1	CD17.16:5—CD17.16:8.1
CD17.24:3, CD17.24:4	CD17.24:3—CD17.24:4.1
CD17.32:3—CD17.32:6	CD17.32:3—CD17.32:6.1
CD17.40:1—CD17.40:4	CD17.40:1—CD17.40:4.1
CD17.40:13—CD17.40:16	CD17.40:13—CD17.40:16
CD17.40:19, CD17.40:20	CD17.40:19—CD17.40:20.1
ODT:133, ODT:134	ODT:133, ODT:134
ODT:139	ODT:139—ODT:144
CDi:9, CDi:10	CDi:9—CDi:10.1
CDi:15, CDi:16	CDi:15, CDi:16
CDi:25, CDi:26	CDi:25, CDi:26
CDi:31, CDi:32	CDi:31—CDi:32.1
CDi:71—CDi:74.1	CDi:71—CDi:74.1
CDi:79, CDi:80	CDi:79, CDi:80
CDi:110.1—CDi:114	CDi:111—CDi:114.1

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SUPPLEMENT NO. 3 (10/07)
VOLUMES I AND II
January 2008

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-1, with Amendment 1, passed October 16, 2007.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter is:

Amendment of August 2, 2007.

See the Charter and Related Laws Comparative Table—Volume I for further information.

Remove old pages	*Insert new pages*
VOLUME I	
Table of Contents	Table of Contents
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CH:19—CH:26	CH:19—CH:26
CH:40.1	CH:40.1
CH:55, CH:56	CH:55, CH:56
CH:79, CH:80	CH:79, CH:80
CHCT:1	CHCT:1
CD1.01:1, CD1.01:2	CD1.01:1, CD1.01:2
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.04:1—CD2.04:11	CD2.04:1, CD2.04:2
CD2.28:3—CD2.28:5	CD2.28:3—CD2.28:5
CD2.72:1, CD2.72:2	CD2.72:1
CD2.108:1, CD2.108:2	CD2.108:1, CD2.108:2
CD2.174:1—CD2.174:4	CD2.174:1
CD2.177:3, CD2.177:4	CD2.177:3, CD2.177:4
	CD2.222:1—CD2.222:9
CD5.04:1—CD5.04:3	CD5.04:1—CD5.04:4
CD5.12:1—CD5.12:3	CD5.12:1—CD5.12:3
CD5.16:1—CD5.16:3	CD5.16:1—CD5.16:4
CD5.32:1—CD5.32:6	CD5.32:1—CD5.32:7

Remove old pages	*Insert new pages*
CD6.00:1	CD6.00:1
	CD6.06:1—CD6.06:3
CD6.80:1, CD6.80:2	CD6.80:1, CD6.80:2
CD6.80:13, CD6.80:14	CD6.80:13, CD6.80:14
CD6.100:1, CD6.100:2	CD6.100:1, CD6.100:2
CD10.32:1—CD10.32:3	CD10.32:1—CD10.32:4
CD10.60:1—CD10.60:4	CD10.60:1—CD10.60:4
CD10.64:1—CD10.64:4	CD10.64:1—CD10.64:7
CD11.28:5, CD11.28:6	CD11.28:5, CD11.28:6
	VOLUME II
Table of Contents	Table of Contents
CD15.20:1, CD15.20:2	CD15.20:1, CD15.20:2
CD15.24:1—CD15.24:3	CD15.24:1—CD15.24:3
CD15.32:5	CD15.32:5
CD15.36:1—CD15.36:4	CD15.36:1—CD15.36:4
CD15.44:1—CD15.44:3	CD15.44:1—CD15.44:4
CD15.48:1—CD15.48:5	CD15.48:1—CD15.48:6
CD15.60:1, CD15.60:2	CD15.60:1—CD15.60:2.1
CD15.60:15, CD15.60:16	CD15.60:15, CD15.60:16
CD15.64:1—CD15.64:7	CD15.64:1—CD15.64:9
CD16.00:1	CD16.00:1
CD16.08:1—CD16.08:15	CD16.08:1—CD16.08:10
CD16.12:1—CD16.12:18	CD16.12:1—CD16.12:17
CD16.16:1—CD16.16:14	CD16.16:1—CD16.16:13
CD16.20:1—CD16.20:14	CD16.20:1—CD16.20:16
CD16.24:9—CD16.24:10.1	CD16.24:9—CD16.24:10.1
CD16.28:1—CD16.28:8	CD16.28:1—CD16.28:8
	CD16.33:1—CD16.33:4
	CD16.60:1—CD16.60:3
CD17.04:11, CD17.04:12	CD17.04:11, CD17.04:12
CD17.04:21, CD17.04:22	CD17.04:21, CD17.04:22
CD17.12:11—CD17.12:17	CD17.12:11—CD17.12:18
CD17.32:3—CD17.32:6	CD17.32:3—CD17.32:6
CD17.36:3—CD17.36:6	CD17.36:3—CD17.36:6.1
CD17.40:25—CD17.40:28	CD17.40:25—CD17.40:28
ODT:109—ODT:135	ODT:109—ODT:139
CDi:1—CDi:6	CDi:1—CDi:6.1
CDi:10.1—CDi:44	CDi:11—CDi:44.2
CDi:49—CDi:52.1	CDi:49—CDi:52.1
CDi:56.1—CDi:58	CDi:57—CDi:58.1
CDi:62.1—CDi:66	CDi:63—CDi:66.1
CDi:69—CDi:74	CDi:69—CDi:74.1
CDi:77—CDi:82.1	CDi:77—CDi:82.1
CDi:103—CDi:110	CDi:103—CDi:110.1

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SUPPLEMENT NO. 2 (07/07)
VOLUMES I AND II
August 2007

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2007-1371, passed March 20, 2007.

See the Ordinance List and Disposition Table—Volume II for further information.

Remove old pages	*Insert new pages*
VOLUME I	
Table of Contents	Table of Contents
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD1.01:1, CD1.01:2	CD1.01:1, CD1.01:2
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.24:1—CD2.24:8	CD2.24:1—CD2.24:9
CD2.40:1—CD2.40:5	CD2.40:1—CD2.40:5
CD2.44:1—CD2.44:6	CD2.44:1—CD2.44:6
	CD2.177:1—CD2.177:4
CD3.08:9, CD3.08:10	CD3.08:9, CD3.08:10
CD3.24:1, CD3.24:2	CD3.24:1
CD4.20:1—CD4.20:3	CD4.20:1—CD4.20:4
CD6.80:5, CD6.80:6	CD6.80:5—CD6:80.6.1
CD8.08:1, CD8.08:2	CD8.08:1, CD8.08:2
CD8.12:1, CD8.12:2	CD8.12:1—CD8.12:3
VOLUME II	
Table of Contents	Table of Contents
CD12.52:1, CD12.52:2	CD12.52:1, CD12.52:2
CD13.08:1, CD13.08:2	CD13.08:1, CD13.08:2
CD15.04:1—CD15.04:5	CD15.04:1—CD15.04:5
CD15.16:1—CD15.16:7	CD15.16:1—CD15.16:6
CD15.40:1, CD15.40:2	CD15.40:1, CD15.40:2
CD16.28:1—CD16.28:2.1	CD16.28:1—CD16.28:2.1
CD17.04:13, CD17.04:14	CD17.04:13, CD17.04:14
CD17.04:21, CD17.04:22	CD17.04:21, CD17.04:22
CD17.08:7—CD17.08:12	CD17.08:7—CD17.08:12

Remove old pages	*Insert new pages*
CD17.12:1, CD17.12:2	CD17.12:1, CD17.12:2
CD17.12:11—CD17.12:16	CD17.12:11—CD17.12:17
CD17.16:7, CD17.16:8	CD17.16:7—CD17.16:8.1
CD17.20:1, CD17.20:2	CD17.20:1, CD17.20:2
CD17.20:19, CD17.20:20	CD17.20:19, CD17.20:20
CD17.40:7—CD17.40:8.1	CD17.40:7—CD17.40:8.2
CD17.40:27, CD17.40:28	CD17.40:27, CD17.40:28
ODT:121, ODT:122	ODT:121, ODT:122
ODT:129—ODT:132	ODT:129—ODT:135
CDi:1, CDi:2	CDi:1, CDi:2
CDi:9—CDi:10.1	CDi:9—CDi:10.1
CDi:13—CDi:14.1	CDi:13—CDi:14.1
CDi:21, CDi:22	CDi:21—CDi:22.1
CDi:31—CDi:32.1	CDi:31—CDi:32.1
CDi:37—CDi:40.1	CDi:37—CDi:40
CDi:51, CDi:52	CDi:51—CDi:52.1
CDi:65—CDi:70	CDi:65—CDi:70.1
CDi:81, CDi:82	CDi:81—CDi:82.1
CDi:103—CDi:117	CDi:103—CDi:118

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SUPPLEMENT NO. 1 (11/06)
VOLUMES I AND II
March 2007

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. BL2006-1195 (Special), passed October 18, 2006.

See the Ordinance List and Disposition Table—Volume II for further information.

Included in the Charter is:

Amendment of November 9, 2006.

See the Charter and Related Laws Comparative Table—Volume I for further information.

Remove old pages	*Insert new pages*
	VOLUME I
iii—vii	iii—vii
	Checklist of up-to-date pages (following Table of Contents)
CH:3—CH:6	CH:3—CH:6
CH:17—CH:26	CH:17—CH:26.1
CH:39, CH:40	CH:39—CH:40.1
CH:55, CH:56	CH:55, CH:56
CH:67, CH:68	CH:67—CH:68.1
CH:75—CH:78	CH:75—CH:78
CHCT:1	CHCT:1
CD2.00:1, CD2.00:2	CD2.00:1, CD2.00:2
CD2.24:3, CD2.24:4	CD2.24:3, CD2.24:4
CD2.56:3—CD2.56:7	CD2.56:3—CD2.56:7
CD2.68:1	CD2.68:1
	CD2.176:1—CD2.176:4
CD3.04:1	CD3.04:1
CD3.08:1, CD3.08:2	CD3.08:1, CD3.08:2
CD3.08:11—CD3.08:17	CD3.08:11—CD3.08:18
CD3.28:1—CD3.28:4	CD3.28:1—CD3.28:4
CD3.29:1—CD3.29:4	CD3.29:1—CD3.29:5
CD4.04:1—CD4.04:3	CD4.04:1—CD4.04:3
CD4.40:1	CD4.40:1

Remove old pages	*Insert new pages*
CD6.54:3—CD6.54:16	CD6.54:3—CD6.54:16.1
CD6.72:9—CD6.72:14	CD6.72:9—CD6.72:14
CD6.80:9—CD6.80:14	CD6.80:9—CD6.80:14
CD11.12:3, CD11.12:4	CD11.12:3, CD11.12:4
	VOLUME II
CD12.72:1	CD12.72:1, CD12.72:2
CD13.08:1, CD13.08:2	CD13.08:1, CD13.08:2
CD15.12:1—CD15.12:6	CD15.12:1—CD15.12:6
CD15.20:1, CD15.20:2	CD15.20:1, CD15.20:2
CD15.32:1, CD15.32:2	CD15.32:1—CD15.32:5
CD15.36:1—CD15.36:4	CD15.36:1—CD15.36:4
CD15.44:1—CD15.44:3	CD15.44:1—CD15.44:3
CD15.48:1—CD15.48:5	CD15.48:1—CD15.48:5
CD16.24:5—CD16.24:10	CD16.24:5—CD16.24:10.1
CD16.28:1, CD16.28:2	CD16.28:1—CD16.28:2.1
CD17.04:5—CD17.04:8	CD17.04:5—CD17.04:8
CD17.04:13—CD17.04:22	CD17.04:13—CD17.04:22
CD17.08:7, CD17.08:8	CD17.08:7, CD17.08:8
CD17.12:1—CD17.12:15	CD17.12:1—CD17.12:16
CD17.20:1, CD17.20:2	CD17.20:1, CD17.20:2
CD17.20:5—CD17.20:8	CD17.20:5—CD17.20:8.1
CD17.20:19, CD17.20:20	CD17.20:19, CD17.20:20
CD17.28:1—CD17.28:4	CD17.28:1—CD17.28:4.1
CD17.40:7, CD17.40:8	CD17.40:7—CD17.40:8.1
ODT:111, ODT:112	ODT:111, ODT:112
ODT:119—ODT:129	ODT:119—ODT:132
CDi:7—CDi:10	CDi:7—CDi:10.1
CDi:13, CDi:14	CDi;13—CDi:14.1
CDi:31, CDi:32	CDi:31—CDi:32.1
CDi:39, CDi:40	CDi:39—CDi:40.1
CDi:45, CDi:46	CDi:45—CDi:46.1
CDi:55, CDi:56	CDi:55—CDi:56.1
CDi:59—CDi:62	CDi:59—CDi:62.1
CDi:69—CDi:72	CDi:69—CDi:72.1
CDi:77, CDi:78	CDi:77—CDi:78.1
CDi:107—CDi:110	CDi:107—CDi:110
CDi:115—CDi:117	CDi:115—CDi:117

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REPUBLICATION
VOLUMES I AND II
August 2006

THE CODE OF THE

METROPOLITAN

GOVERNMENT OF NASHVILLE

AND DAVIDSON COUNTY

TENNESSEE

Looseleaf Supplement

This copy of The Code of the Metropolitan Government of Nashville and Davidson County, Tennessee, is issued as a "replacement" copy and contains all ordinances deemed advisable to be included at this time through Ordinance No. BL2006-997 (Special). See the Ordinance List and Disposition Table.

This copy replaces all existing copies of the Code, as published through July, 2005. Future Supplements will commence with Supp. No. 1.

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THE CODE OF THE METROPOLITAN GOVERNMENT OF NASHVILLE AND DAVIDSON COUNTY, TENNESSEE

VOLUME I

A Codification of the General Ordinances of Nashville and Davidson County, Tennessee Published in 2006

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Checklist of Up-to-Date Pages

(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

Page No.	Supp. No.	Page No.	Supp. No.
VOLUME I		SH:31, SH:32	22 (1/16)
Title Page	38 (11/21)	SH:33, SH:34	24 (7/16)
Table of Contents:1	12 (10/11)	SH:35, SH:36	24 (7/16)
iii, iv	1 (11/06)	SH:37, SH:38	24 (7/16)
v, vi	1 (11/06)	SH:39, SH:40	25 (3/17)
vii	1 (11/06)	SH:41, SH:42	25 (3/17)
SH:1, SH:2	24 (7/16)	SH:43, SH:44	25 (3/17)
SH:3, SH:4	24 (7/16)	SH:45, SH:46	26 (9/17)
SH:5, SH:6	24 (7/16)	SH:47, SH:48	26 (9/17)
SH:7, SH:8	24 (7/16)	SH:49, SH:50	26 (9/17)
SH:9, SH:10	24 (7/16)	SH:51, SH:52	27 (2/18)
SH:11, SH:12	16 (2/13)	SH:53, SH:54	27 (2/18)
SH:13, SH:14	17 (7/13)	SH:55, SH:56	27 (2/18)
SH:15, SH:16	18 (3/14)	SH:57, SH:58	28 (9/18)
SH:17, SH:18	18 (3/14)	SH:59, SH:60	28 (9/18)
SH:19, SH:20	19 (10/14)	SH:61, SH:62	29 (2/19)
SH:21, SH:22	19 (10/14)	SH:63, SH:64	29 (2/19)
SH:23, SH:24	20 (3/15)	SH:65, SH:66	30 (10/19)
SH:25, SH:26	20 (3/15)	SH:67, SH:68	30 (10/19)
SH:27, SH:28	24 (7/16)	SH:69, SH:70	30 (10/19)
SH:29, SH:30	22 (1/16)	SH:71, SH:72	31 (1/20)

CHECKLIST OF UP-TO-DATE PAGES

Page No.	Supp. No.	Page No.	Supp. No.
SH:73, SH:74	32 (4/20)	CH:7, CH:8	41 (10/22)
SH:75, SH:76	33 (7/20)	CH:9, CH:10	41 (10/22)
SH:77, SH:78	33 (7/20)	CH:11, CH:12	41 (10/22)
SH:79, SH:80	34 (10/20)	CH:13, CH:14	41 (10/22)
SH:81, SH:82	35 (1/21)	CH:15	41 (10/22)
SH:83, SH:84	36 (5/21)	CH:17, CH:18	29 (2/19)
SH:85, SH:86	37 (5/21)	CH:19, CH:20	33 (7/20)
SH:87, SH:88	37 (5/21)	CH:21, CH:22	33 (7/20)
SH:89, SH:90	38 (11/21)	CH:23, CH:24	33 (7/20)
SH:91, SH:92	40 (6/22)	CH:25, CH:26	33 (7/20)
SH:93, SH:94	40 (6/22)	CH:26.1	33 (7/20)
SH:95, SH:96	40 (6/22)	CH:27, CH:28	29 (2/19)
SH:97, SH:98	40 (6/22)	CH:29, CH:30	29 (2/19)
SH:99, SH:100	41 (10/22)	CH:31, CH:32	29 (2/19)
SH:101, SH:102	42 (2/23)	CH:33, CH:34	29 (2/19)
SH:103, SH:104	42 (2/23)	CH:35, CH:36	29 (2/19)
SH:105, SH:106	43 (5/23)	CH:37, CH:38	29 (2/19)
SH:107, SH:108	43 (5/23)	CH:39, CH:40	29 (2/19)
SH:109, SH:110	44 (9/23)	CH:41, CH:42	33 (7/20)
SH:111, SH:112	44 (9/23)	CH:43, CH:44	41 (10/22)
SH:113, SH:114	45 (1/24)	CH:45, CH:46	41 (10/22)
SH:115, SH:116	45 (1/24)	CH:46.1	41 (10/22)
SH:117, SH:118	46 (4/24)	CH:47, CH:48	29 (2/19)
SH:119, SH:120	46 (4/24)	CH:49, CH:50	30 (10/19)
SH:121, SH:122	46 (4/24)	CH:50.1	30 (10/19)
SH:123, SH:124	47 (8/24)	CH:51, CH:52	29 (2/19)
SH:125, SH:126	48 (11/24)	CH:53, CH:54	41 (10/22)
SH:127, SH:128	49 (2/25)	CH:55, CH:56	41 (10/22)
SH:129, SH:130	50 (5/25)	CH:56.1	41 (10/22)
SH:131, SH:132	51 (7/25)	CH:57, CH:58	33 (7/20)
SH:133, SH:134	51 (7/25)	CH:59, CH:60	29 (2/19)
SH:135, SH:136	52 (11/25)	CH:61, CH:62	29 (2/19)
SH:137, SH:138	53 (3/26)	CH:63, CH:64	51 (7/25)
SH:139, SH:140	53 (3/26)	CH:65, CH:66	29 (2/19)
SH:141	53 (3/26)	CH:67, CH:68	29 (2/19), Rev.
CH:1	OC	CH:69, CH:70	29 (2/19)
CH:3, CH:4	29 (2/19)	CH:71, CH:72	29 (2/19)
CH:5, CH:6	41 (10/22)		

CHECKLIST OF UP-TO-DATE PAGES

Page No.	Supp. No.	Page No.	Supp. No.
CH:73, CH:74	29 (2/19)	CHA:47, CHA:48	OC
CH:75, CH:76	29 (2/19)	CHA:49, CHA:50	OC
CH:77, CH:78	53 (3/26)	CHA:51, CHA:52	OC
CH:79, CH:80	29 (2/19)	CHA:53, CHA:54	OC
CH:81, CH:82	29 (2/19)	CHA:55, CHA:56	OC
CH:83, CH:84	29 (2/19)	CHA:57, CHA:58	OC
CH:85, CH:86	33 (7/20)	CHA:59, CHA:60	OC
CH:87, CH:88	29 (2/19)	CHA:61, CHA:62	OC
CH:89, CH:90	29 (2/19)	CHA:63, CHA:64	OC
CH:91, CH:92	29 (2/19)	CHA:65	OC
CH:93, CH:94	41 (10/22)	RPL:1, RPL:2	OC
CH:94.1, CH:94.2	41 (10/22)	RPL:3, RPL:4	OC
CH:95, CH:96	29 (2/19)	RPL:5, RPL:6	OC
CH:97, CH:98	29 (2/19)	RPL:7, RPL:8	OC
CH:99, CH:100	29 (2/19)	RPL:9, RPL:10	OC
CH:101, CH:102	29 (2/19)	RPL:11, RPL:12	OC
CHA:1, CHA:2	OC	RPL:13, RPL:14	OC
CHA:3, CHA:4	OC	RPL:15, RPL:16	OC
CHA:5, CHA:6	OC	RPL:17, RPL:18	OC
CHA:7, CHA:8	OC	RPL:19, RPL:20	OC
CHA:9, CHA:10	OC	RPL:21, RPL:22	OC
CHA:11, CHA:12	OC	RPL:23, RPL:24	OC
CHA:13, CHA:14	OC	RPL:25, RPL:26	OC
CHA:15, CHA:16	13 (1/12)	RPL:27, RPL:28	OC
CHA:17, CHA:18	39 (3/22)	RPL:29, RPL:30	OC
CHA:18.1	39 (3/22)	RPL:31, RPL:32	OC
CHA:19, CHA:20	13 (1/12)	RPL:33, RPL:34	OC
CHA:21, CHA:22	13 (1/12)	RPL:35, RPL:36	OC
CHA:23, CHA:24	13 (1/12)	CHCT:1, CHCT:2	29 (2/19)
CHA:25, CHA:26	13 (1/12)	CHCT:3, CHCT:4	41 (10/22)
CHA:27, CHA:28	13 (1/12)	CD1.00:1	OC
CHA:29, CHA:30	13 (1/12)	CD1.01:1, CD1.01:2	53 (3/26)
CHA:31, CHA:32	13 (1/12)	CD1.01:3, CD1.01:4	53 (3/26)
CHA:33, CHA:34	13 (1/12)	CD1.04:1, CD1.04:2	53 (3/26)
CHA:35, CHA:36	13 (1/12)	CD1.08:1	OC
CHA:37	13 (1/12)	CD1.12:1	OC
CHA:43, CHA:44	OC	CD1.16:1	16 (2/13)
CHA:45, CHA:46	OC	CD1.20:1	OC

CHECKLIST OF UP-TO-DATE PAGES

Page No.	Supp. No.	Page No.	Supp. No.
CD1.24:1, CD1.24:2	35 (1/21)	CD2.56:7	37 (5/21)
CD2.00:1, CD2.00:2	53 (3/26)	CD2.60:1, CD2.60:2	OC
CD2.04:1, CD2.04:2	27 (2/18)	CD2.60:3, CD2.60:4	OC
CD2.08:1, CD2.08:2	35 (1/21)	CD2.60:5, CD2.60:6	OC
CD2.08:3	34 (10/20)	CD2.60:7, CD2.60:8	OC
CD2.10:1, CD2.10:2	OC	CD2.60:9, CD2.60:10	OC
CD2.12:1	OC	CD2.61:1, CD2.61:2	53 (3/26)
CD2.16:1	OC	CD2.62:1, CD2.62:2	OC
CD2.20:1, CD2.20:2	12 (10/11)	CD2.62:3, CD2.62:4	25 (3/17)
CD2.20:3	26 (9/17)	CD2.62:5, CD2.62:6	25 (3/17)
CD2.24:1, CD2.24:2	28 (9/18)	CD2.63:1	48 (11/24)
CD2.24:3, CD2.24:4	28 (9/18)	CD2.64:1, CD2.64:2	49 (2/25)
CD2.24:5, CD2.24:6	38 (11/21)	CD2.68:1	26 (9/17)
CD2.24:7, CD2.24:8	49 (2/25)	CD2.72:1	3 (10/07)
CD2.24:9, CD2.24:10	49 (2/25)	CD2.76:1, CD2.76:2	37 (5/21)
CD2.24:11	49 (2/25)	CD2.76:3	37 (5/21)
CD2.28:1, CD2.28:2	OC	CD2.78:1	47 (8/24)
CD2.28:3, CD2.28:4	26 (9/17)	CD2.80:1, CD2.80:2	41 (10/22)
CD2.28:5	26 (9/17)	CD2.84:1	37 (5/21)
CD2.30:1	24 (7/16)	CD2.88:1, CD2.88:2	43 (5/23)
CD2.32:1, CD2.32:2	30 (10/19)	CD2.92:1	37 (5/21)
CD2.32:3, CD2.32:4	30 (10/19)	CD2.96:1	49 (2/25)
CD2.36:1, CD2.36:2	OC	CD2.100:1, CD2.100:2	43 (5/23)
CD2.36:3, CD2.36:4	OC	CD2.104:1, CD2.104:2	23 (5/16)
CD2.36:5	OC	CD2.104:3	23 (5/16)
CD2.38:1	OC	CD2.106:1, CD2.106:2	45 (1/24)
CD2.40:1, CD2.40:2	51 (7/25)	CD2.106:3, CD2.106:4	45 (1/24)
CD2.40:3, CD2.40:4	53 (3/26)	CD2.107:1	47 (8/24)
CD2.40:5, CD2.40:6	53 (3/26)	CD2.108:1, CD2.108:2	33 (7/20)
CD2.44:1, CD2.44:2	47 (8/24)	CD2.112:1, CD2.112:2	51 (7/25)
CD2.44:3, CD2.44:4	47 (8/24)	CD2.114:1	53 (3/26)
CD2.44:5, CD2.44:6	47 (8/24)	CD2.116:1	43 (5/23)
CD2.44:7, CD2.44:8	47 (8/24)	CD2.120:1, CD2.120:2	23 (5/16)
CD2.48:1	OC	CD2.124:1	9 (09/10)
CD2.52:1	OC	CD2.128:1, CD2.128:2	51 (7/25)
CD2.56:1, CD2.56:2	38 (11/21)	CD2.130:1	51 (7/25)
CD2.56:3, CD2.56:4	38 (11/21)	CD2.132:1, CD2.132:2	51 (7/25)
CD2.56:5, CD2.56:6	37 (5/21)	CD2.132:3	51 (7/25)

Page No.	Supp. No.	Page No.	Supp. No.
CD2.136:1	38 (11/21)	CD2.210:3	41 (10/22)
CD2.140:1, CD2.140:2	28 (9/18)	CD2.211:1	51 (7/25)
CD2.144:1, CD2.144:2	49 (2/25)	CD2.212:1, CD2.212:2	31 (1/20)
CD2.147:1, CD2:147:2	52 (11/25)	CD2.213:1, CD2.213:2	25 (3/17)
CD2.148:1	51 (7/25)	CD2.213:3, CD2.213:4	25 (3/17)
CD2.149:1, CD2.149.2	49 (2/25)	CD2.214:1, CD2.214:2	OC
CD2.152:1	OC	CD2.215:1	27 (2/18)
CD2.153:1, CD2.153:2	51 (7/25)	CD2.218:1	OC
CD2.154:1, CD2.154:2	53 (3/26)	CD2.222:1, CD2.222:2	25 (3/17)
CD2.155:1	51 (7/25)	CD2.222:3, CD2.222:4	36 (5/21)
CD2.156:1	51 (7/25)	CD2.222:5, CD2.222:6	36 (5/21)
CD2.160:1, CD2.160:2	18 (3/14)	CD2.222:7, CD2.222:8	46 (4/24)
CD2.164:1	28 (9/18)	CD2.222:9	49 (2/25)
CD2.168:1	OC	CD2.224:1	19 (10/14)
CD2.172:1	OC	CD2.226:1, CD2.226.2	40 (6/22)
CD2.174:1	3 (10/07)	CD2.232:1	35 (1/21)
CD2.175:1	33 (7/20)	CD3.00:1	41 (10/22)
CD2.176:1, CD2.176:2	22 (1/16)	CD3.04:1	1 (11/06)
CD2.176:3, CD2.176:4	26 (9/17)	CD3.05:1, CD3.05:2	5 (04/09)
CD2.177:1, CD2.177:2	52 (11/25)	CD3.06:1	41 (10/22)
CD2.177:3, CD2.177:4	52 (11/25)	CD3.08:1, CD3.08:2	38 (11/21)
CD2.177:5	52 (11/25)	CD3.08:3, CD3.08:4	38 (11/21)
CD2.178:1, CD2.178:2	42 (2/23)	CD3.08:5, CD3.08:6	38 (11/21)
CD2.178:3, CD2.178:4	42 (2/23)	CD3.08:7, CD3.08:8	38 (11/21)
CD2.179:1, CD2.179:2	53 (3/26)	CD3.08:9, CD3.08:10	38 (11/21)
CD2.179:3, CD2.179:4	53 (3/26)	CD3.08:11, CD3.08:12	38 (11/21)
CD2.179:5	53 (3/26)	CD3.08:13, CD3.08:14	38 (11/21)
CD2.188:1	OC	CD3.08:15, CD3.08:16	38 (11/21)
CD2.190:1	25 (3/17)	CD3.08:17, CD3.08:18	38 (11/21)
CD2.196:1, CD2.196:2	39 (3/22)	CD3.12:1, CD3.12:2	15 (10/12)
CD2.196:3, CD2.196:4	47 (8/24)	CD3.12:3	15 (10/12)
CD2.196:5, CD2.196:6	47 (8/24)	CD3.14:1, CD3.14:2	19 (10/14)
CD2.196:7, CD2.196:8	47 (8/24)	CD3.16:1, CD3.16:2	28 (9/18)
CD2.196:9	47 (8/24)	CD3.16:3, CD3:16:4	18 (3/14)
CD2.198:1	OC	CD3.20:1, CD3.20:2	OC
CD2.202:1	OC	CD3.24:1, CD3.24:2	53 (3/26)
CD2.206:1	29 (2/19)	CD3.28:1, CD3.28:2	1 (11/06)
CD2.210:1, CD2.210:2	35 (1/21)	CD3.28:3, CD3.28:4	15 (10/12)

Page No.	Supp. No.	Page No.	Supp. No.
CD3.28:5	15 (10/12)	CD4.28:1, CD4.28:2	12 (10/11)
CD3.29:1, CD3.29:2	1 (11/06)	CD4.32:1	OC
CD3.29:3, CD3.29:4	15 (10/12)	CD4.36:1, CD4.36:2	53 (3/26)
CD3.29:5	15 (10/12)	CD4.36:3	53 (3/26)
CD3.30:1, CD3.30:2	20 (3/15)	CD4.40:1	53 (3/26)
CD3.30:3, CD3.30:4	20 (3/15)	CD4.44:1, CD4.44:2	13 (1/12)
CD3.30:5, CD3.30:6	20 (3/15)	CD4.46:1, CD4.46:2	51 (7/25)
CD3.30:7, CD3.30:8	20 (3/15)	CD4.46:2.1	51 (7/25)
CD3.30:9, CD3.30:10	20 (3/15)	CD4.46:3, CD4.46:4	29 (2/19)
CD3.30:11, CD3.30:12	20 (3/15)	CD4.46:5, CD4.46:6	29 (2/19)
CD3.30:13, CD3.30:14	20 (3/15)	CD4.46:7, CD4.46:8	29 (2/19)
CD3.32:1, CD3.32:2	15 (10/12)	CD4.46:9, CD4.46:10	29 (2/19)
CD3.33:1, CD3.33:2	15 (10/12)	CD4.46:11	29 (2/19)
CD3.36:1, CD3.36:2	38 (11/21)	CD4.48:1, CD4.48:2	27 (2/18)
CD3.37:1, CD3.37:2	38 (11/21)	CD4.48:3, CD4.48:4	34 (10/20)
CD3.40:1, CD3.40:2	OC	CD4.48:5	34 (10/20)
CD3.40:3, CD3.40:4	5 (04/09)	CD5.00:1	43 (5/23)
CD3.40:5, CD3.40:6	5 (04/09)	CD5.04:1, CD5.04:2	43 (5/23)
CD3.44:1, CD3.44:2	OC	CD5.04:3, CD5.04.4	43 (5/23)
CD3.48:1, CD3.48:2	OC	CD5.04:5, CD5.04:6	43 (5/23)
CD3.52:1	37 (5/21)	CD5.04:7, CD5.04:8	52 (11/25)
CD3.56:1, CD3.56:2	OC	CD5.04:9	52 (11/25)
CD3.60:1, CD3.60:2	OC	CD5.06:1, CD5.06:2	30 (10/19)
CD3.64:1	OC	CD5.06:3	30 (10/19)
CD4.00:1	29 (2/19)	CD5.08:1, CD5.08:2	OC
CD4.04:1, CD4.04:2	1 (11/06)	CD5.10:1, CD5:10.2	33 (7/20)
CD4.04:3	37 (5/21)	CD5.11:1, CD5.11:2	39 (3/22)
CD4.08:1, CD4.08:2	51 (7/25)	CD5.12:1, CD5.12:2	42 (2/23)
CD4.08:3	51 (7/25)	CD5.12:3, CD5.12:4	42 (2/23)
CD4.12:1, CD4.12:2	53 (3/26)	CD5.14:1, CD5.14:2	28 (9/18)
CD4.12:3, CD4.12:4	53 (3/26)	CD5.16:1, CD5.16:2	42 (2/23)
CD4.12:5, CD4.12:6	53 (3/26)	CD5.16:3, CD5.16:4	42 (2/23)
CD4.12:7, CD4.12:8	53 (3/26)	CD5.16:5	42 (2/23)
CD4.16:1	OC	CD5.20:1, CD5.20:2	42 (2/23)
CD4.20:1, CD4.20:2	48 (11/24)	CD5.22:1, CD5.22:2	43 (5/23)
CD4.20:3, CD4.20:4	48 (11/24)	CD5.22:3, CD5.22:4	43 (5/23)
CD4.20:5, CD4.20:6	48 (11/24)	CD5.22:5	43 (5/23)
CD4.24:1	OC	CD5.24:1	41 (10/22)

Page No.	Supp. No.	Page No.	Supp. No.
CD5.28:1	OC	CD6.26:11, CD6.26:12	25 (3/17)
CD5.32:1, CD5.32:2	18 (3/14)	CD6.26:13	25 (3/17)
CD5.32:3, CD5.32:4	18 (3/14)	CD6.28:1, CD6.28:2	49 (2/25)
CD5.32:5, CD5.32:6	18 (3/14)	CD6.28:3, CD6.28:4	49 (2/25)
CD5.36:1	OC	CD6.28:5, CD6.28:6	49 (2/25)
CD5.40:1	OC	CD6.28:7, CD6.28:8	51 (7/25)
CD6.00:1	53 (3/26)	CD6.32:1, CD6.32:2	26 (9/17)
CD6.04:1, CD6.04:2	26 (9/17)	CD6.32:3, CD6.32:4	26 (9/17)
CD6.04:3	26 (9/17)	CD6.32:5, CD6.32:6	26 (9/17)
CD6.06:1, CD6.06:2	24 (7/16)	CD6.40:1	16 (2/13)
CD6.06:3	24 (7/16)	CD6.42:1	9 (09/10)
CD6.08:1, CD6.08:2	17 (7/13)	CD6.44:1	OC3
CD6.08:3, CD6.08:4	17 (7/13)	CD6.48:1	OC
CD6.08:5, CD6.08:6	17 (7/13)	CD6.52:1, CD6.52:2	5 (04/09)
CD6.08:7, CD6.08:8	17 (7/13)	CD6.52:3, CD6.52:4	5 (04/09)
CD6.08:9, CD6.08:10	17 (7/13)	CD6.52:5, CD6.52:6	5 (04/09)
CD6.08:11, CD6.08:12	43 (5/23)	CD6.54:1, CD6.54:2	51 (7/25)
CD6.08:13, CD6.08:14	43 (5/23)	CD6.54:3, CD6.54:4	51 (7/25)
CD6.08:15, CD6.08:16	43 (5/23)	CD6.54:4.1	51 (7/25)
CD6.08:17, CD6.08:18	43 (5/23)	CD6.54:5, CD6.54:6	1 (11/06)
CD6.08:19, CD6.08:20	43 (5/23)	CD6.54:7, CD6.54:8	1 (11/06)
CD6.10:1	8 (03/10)	CD6.54:9, CD6.54:10	1 (11/06)
CD6.12:1	24 (7/16)	CD6.54:11, CD6.54:12	1 (11/06)
CD6.14:1	OC	CD6.54:13, CD6.54:14	1 (11/06)
CD6.16:1	16 (2/13)	CD6.54:15, CD6.54:16	1 (11/06)
CD6.20:1, CD6.20:2	18 (3/14)	CD6.54:16.1	1 (11/06)
CD6.20:3, CD6.20:4	18 (3/14)	CD6.54:17, CD6.54:18	OC
CD6.20:5, CD6.20:6	18 (3/14)	CD6.56:1	16 (2/13)
CD6.20:7, CD6.20:8	18 (3/14)	CD6.60:1, CD6.60:2	OC
CD6.20:9, CD6.20:10	18 (3/14)	CD6.60:3	OC
CD6.20:11, CD6.20:12	18 (3/14)	CD6.64:1, CD6.64:2	49 (2/25)
CD6.24:1	OC	CD6.64:3, CD6.64:4	49 (2/25)
CD6.26:1, CD6.26:2	25 (3/17)	CD6.64:5, CD6.64:6	49 (2/25)
CD6.26:3, CD6.26:4	25 (3/17)	CD6.68:1, CD6.68:2	OC
CD6.26:4.1	25 (3/17)	CD6.68:3, CD6.68:4	OC
CD6.26:5, CD6.26:6	OC	CD6.72:1, CD6.72:2	51 (7/25)
CD6.26:7, CD6.26:8	OC	CD6.72:3, CD6.72:4	51 (7/25)
CD6.26:9, CD6.26:10	OC	CD6.72:5, CD6.72:6	51 (7/25)

Page No.	Supp. No.	Page No.	Supp. No.
CD6.72:7, CD6.72:8	51 (7/25)	CD6.78:1, CD6.78:2	53 (3/26)
CD6.72:9, CD6.72:10	51 (7/25)	CD6.78:3, CD6.78:4	53 (3/26)
CD6.72:11, CD6.72:12	51 (7/25)	CD6.78:5, CD6.78:6	53 (3/26)
CD6.72:13, CD6.72:14	51 (7/25)	CD6.78:7, CD6.78:8	53 (3/26)
CD6.72:15	51 (7/25)	CD6.78:9, CD6.78:10	53 (3/26)
CD6.73:1, CD6.73:2	30 (10/19)	CD6.78:11, CD6.78:12	53 (3/26)
CD6.73:2.1	30 (10/19)	CD6.80:1, CD6.80:2	30 (10/19)
CD6.73:3, CD6.73:4	20 (3/15)	CD6.80:3, CD6.80:4	40 (6/22)
CD6.73:5, CD6.73:6	30 (10/19)	CD6.80:5, CD6.80:6	40 (6/22)
CD6.73:6.1	30 (10/19)	CD6.80:7, CD6.80:8	40 (6/22)
CD6.73:7, CD6.73:8	20 (3/15)	CD6.80:9, CD6.80:10	45 (1/24)
CD6.73:9, CD6.73:10	20 (3/15)	CD6.80:10.1	45 (1/24)
CD6.73:11	20 (3/15)	CD6.80:11, CD6.80:12	40 (6/22)
CD6.74:1, CD6.74:2	30 (10/19)	CD6.80:13, CD6.80:14	40 (6/22)
CD6.74:2.1	30 (10/19)	CD6.80:15	40 (6/22)
CD6.74:3, CD6.74:4	26 (9/17)	CD6.81:1, CD6.81:2	40 (6/22)
CD6.74:4.1	26 (9/17)	CD6.81:3, CD6.81:4	40 (6/22)
CD6.74:5, CD6.74:6	20 (3/15)	CD6.81:5, CD6.81:6	40 (6/22)
CD6.74:7, CD6.74:8	20 (3/15)	CD6.81:7	40 (6/22)
CD6.74:9, CD6.74:10	30 (10/19)	CD6.82:1	OC
CD6.74:11, CD6.74:12	30 (10/19)	CD6.84:1, CD6.84:2	OC
CD6.74:13, CD6.74:14	30 (10/19)	CD6.88:1, CD6.88:2	OC
CD6.75:1, CD6.75:2	30 (10/19)	CD6.88:3	OC
CD6.75:3, CD6.75:4	20 (3/15)	CD6.92:1	OC
CD6.75:5, CD6.75:6	23 (5/16)	CD6.100:1, CD6.100:2	3 (10/07)
CD6.75:7, CD6.75:8	39 (3/22)	CD6.100:3	OC
CD6.75:9, CD6.75:10	39 (3/22)	CD6.104:1	43 (5/23)
CD6.75:11, CD6.75:12	39 (3/22)	CD7.00:1	26 (9/17)
CD6.75:13	39 (3/22)	CD7.04:1	43 (5/23)
CD6.76:1, CD6.76:2	OC	CD7.08:1, CD7.08:2	46 (4/24)
CD6.76:3, CD6.76:4	OC	CD7.08:3, CD7.08:4	46 (4/24)
CD6.76:5, CD6.76:6	OC	CD7.08:4.1	46 (4/24)
CD6.77:1, CD6.77:2	53 (3/26)	CD7.08:5, CD7.08:6	39 (3/22)
CD6.77:3, CD6.77:4	45 (1/24)	CD7.08:7, CD7.08:8	45 (1/24)
CD6.77:5, CD6.77:6	45 (1/24)	CD7.08:9, CD7.08:10	45 (1/24)
CD6.77:7, CD6.77:8	45 (1/24)	CD7.08:11, CD7.08:12	45 (1/24)
CD6.77:9, CD6.77:10	45 (1/24)	CD7.08:13	45 (1/24)
CD6.77:11, CD6.77:12	45 (1/24)	CD7.12:1, CD7.12:2	26 (9/17)

Page No.	Supp. No.	Page No.	Supp. No.
CD7.16:1, CD7.16:2	45 (1/24)	CD10.20:7, CD10.20:8	52 (11/25)
CD7.16:3, CD7.16:4	49 (2/25)	CD10.20:9, CD10.20:10	52 (11/25)
CD7.16:5, CD7.16:6	49 (2/25)	CD10.20:11, CD10.20:12	52 (11/25)
CD7.20:1	26 (9/17)	CD10.20:13, CD10.20:14	52 (11/25),
CD7.24:1, CD7.24:2	40 (6/22)	CD10.24:1, CD10.24:2	49 (2/25)
CD8.00:1	44 (9/23)	CD10.24:3, CD10.24:4	49 (2/25)
CD8.04:1, CD8.04:2	44 (9/23)	CD10.26:1	53 (3/26)
CD8.04:3, CD8.04:4	44 (9/23)	CD10.28:1, CD10.28:2	53 (3/26)
CD8.04:5, CD8.04:6	44 (9/23)	CD10.28:3	53 (3/26)
CD8.04:7	44 (9/23)	CD10.30:1, CD10.30:2	8 (03/10)
CD8.08:1, CD8.08:2	44 (9/23)	CD10.32:1, CD10.32:2	3 (10/07)
CD8.12:1, CD8.12:2	19 (10/14)	CD10.32:3, CD10.32:4	3 (10/07)
CD8.12:3, CD8.12:4	26 (9/17)	CD10.36:1	OC
CD8.12:5, CD8.12:6	26 (9/17)	CD10.40:1, CD10.40:2	OC
CD8.16:1	OC	CD10.40:3	45 (1/24)
CD8.20:1, CD8.20:2	26 (9/17)	CD10.44:1, CD10.44:2	30 (10/19)
CD8.20:3	26 (9/17)	CD10.44:3	45 (1/24)
CD8.24:1	OC	CD10.48:1, CD10.48:2	26 (9/17)
CD8.30:1	49 (2/25)	CD10.48:3, CD10.48:4	OC
CD9.00:1	33 (7/20)	CD10.52:1	OC
CD9.10:1	33 (7/20)	CD10.56:1, CD10.56:2	24 (7/16)
CD9.20:1, CD9.20:2	53 (3/26)	CD10.56:3, CD10.56:4	24 (7/16)
CD9.20:3	53 (3/26)	CD10.56:5, CD10.56:6	24 (7/16)
CD9.30:1, CD9.30:2	46 (4/24)	CD10.56:6.1	24 (7/16)
CD10.00:1	42 (2/23)	CD10.56:7, CD10.56:8	OC
CD10.04:1, CD10.04:2	OC	CD10.56:9, CD10.56:10	OC
CD10.08:1	OC	CD10.56:11, CD10.56:12	OC
CD10.12:1	OC	CD10.56:13, CD10.56:14	OC
CD10.16:1, CD10.16:2	45 (1/24)	CD10.56:15, CD10.56:16	OC
CD10.16:3, CD10.16:4	45 (1/24)	CD10.56:17, CD10.56:18	17 (7/13)
CD10.16:5, CD10.16:6	45 (1/24)	CD10.56:19, CD10.56:20	42 (2/23)
CD10.16:7, CD10.16:8	45 (1/24)	CD10.56:20.1	42 (2/23)
CD10.18:1, CD10.18:2	34 (10/20)	CD10.56:21, CD10.56:22	17 (7/13)
CD10.18:3	34 (10/20)	CD10.57:1	12 (10/11)
CD10.19:1, CD10.19:2	42 (2/23)	CD10.60:1, CD10.60:2	53 (3/26)
CD10.20:1, CD10.20:2	52 (11/25)	CD10.60:3	53 (3/26)
CD10.20:3, CD10.20:4	52 (11/25)	CD10.64:1, CD10.64:2	53 (3/26)
CD10.20:5, CD10.20:6	52 (11/25)	CD10.64:3, CD10.64:4	53 (3/26)

Page No.	Supp. No.	Page No.	Supp. No.
CD10.64:5, CD10.64:6	53 (3/26)	CD12.08:1, CD12.08:2	OC
CD10.64:7, CD10.64:8	53 (3/26)	CD12.08:3, CD12.08:4	37 (5/21)
CD10.64:9, CD10.64:10	53 (3/26)	CD12.08:5, CD12.08:6	37 (5/21)
CD10.64:11, CD10.64:12	53 (3/26)	CD12.12:1, CD12.12:2	43 (5/23)
CD10.64:13, CD10.64:14	53 (3/26)	CD12.12:3, CD12.12:4	49 (2/25)
CD10.64:15, CD10.64:16	53 (3/26)	CD12.12:5, CD12.12:6	49 (2/25)
CD10.64:17, CD10.64:18	53 (3/26)	CD12.16:1, CD12.16:2	OC
CD10.68:1, CD10.68:2	12 (10/11)	CD12.16:3, CD12.16:4	OC
CD10.70:1	OC	CD12.16:5	OC
CD10.72:1	45 (1/24)	CD12.20:1, CD12.20:2	45 (1/24)
CD10.76:1	16 (2/13)	CD12.24:1, CD12.24:2	OC
CD10.80:1	OC	CD12.28:1	OC
CD10.86:1, CD10.86:2	OC	CD12.32:1, CD12.32:2	30 (10/19)
CD11.00:1	33 (7/20)	CD12.36:1, CD12.36:2	10 (01/11)
CD11.04:1, CD11.04:2	OC	CD12.36:3	37 (5/21)
CD11.08:1	OC	CD12.40:1, CD12.40:2	53 (3/26)
CD11.12:1, CD11.12:2	49 (2/25)	CD12.40:3, CD12.40:4	53 (3/26)
CD11.12:3, CD11.12:4	49 (2/25)	CD12.40:5, CD12.40:6	53 (3/26)
CD11.16:1, CD11.16:2	16 (2/13)	CD12.41:1, CD12.41:2	37 (5/21)
CD11.20:1, CD11.20:2	8 (03/10)	CD12.41:3, CD12.41:4	47 (8/24)
CD11.20:3, CD11.20:4	8 (03/10)	CD12.42:1, CD12.42:2	37 (5/21)
CD11.22:1, CD11.22:2	45 (1/24)	CD12.42:3, CD12.42:4	37 (5/21)
CD11.24:1, CD11.24:2	16 (2/13)	CD12.42:5, CD12.42:6	37 (5/21)
CD11.26:1, CD11.26:2	10 (01/11)	CD12.44:1, CD12.44:2	37 (5/21)
CD11.28:1, CD11.28:2	12 (10/11)	CD12.44:3, CD12.44:4	37 (5/21)
CD11.28:3, CD11.28:4	26 (9/17)	CD12.44:5, CD12.44:6	37 (5/21)
CD11.28:5, CD11.28:6	26 (9/17)	CD12.48:1, CD12.48:2	49 (2/25)
CD11.32:1	25 (3/17)	CD12.48:3	49 (2/25)
CD11.36:1, CD11.36:2	OC	CD12.52:1, CD12.52:2	26 (9/17)
CD11.36:3	OC	CD12.52:3	26 (9/17)
VOLUME II		CD12.54:1, CD12.54:2	30 (10/19)
Title Page	38 (11/21)	CD12.54:3, CD12.54:4	30 (10/19)
Table of Contents:1	12 (10/11)	CD12.54:5, CD12.54:6	30 (10/19)
CD12.00:1	34 (10/20)	CD12.54:7, CD12.54:8	30 (10/19)
CD12.04:1, CD12.04:2	28 (9/18)	CD12.54:9, CD12.54:10	39 (3/22)
CD12.04:3, CD12.04:4	28 (9/18)	CD12.54:11, CD12.54:12	30 (10/19)
CD12.04:5, CD12.04:6	37 (5/21)	CD12.54:13, CD12.54:14	30 (10/19)
CD12.04:7, CD12.04:8	37 (5/21)	CD12.56:1, CD12.56:2	25 (3/17)

Page No.	Supp. No.	Page No.	Supp. No.
CD12.56:3, CD12.56:4	25 (3/17)	CD13.24:3, CD13.24:4	21 (7/15)
CD12.58:1, CD12.58:2	28 (9/18)	CD13.24:5, CD13.24:6	17 (7/13)
CD12.60:1, CD12.60:2	5 (04/09)	CD13.24:7, CD13.24:8	18 (3/14)
CD12.60:3	5 (04/09)	CD13.24:9, CD13.24:10	33 (7/20)
CD12.61:1	34 (10/20)	CD13.24:11	18 (3/14)
CD12.62:1, CD12.62:2	33 (7/20)	CD13.26:1	38 (11/21)
CD12.64:1, CD12.64:2	OC	CD13.27:1	32 (4/20)
CD12.68:1, CD12.68:2	37 (5/21)	CD13.28:1	32 (4/20)
CD12.68:3, CD12.68:4	37 (5/21)	CD13.32:1, CD13.32:2	43 (5/23)
CD12.69:1, CD12.69:2	OC	CD13.32:3, CD13.32:4	43 (5/23)
CD12.72:1, CD12.72:2	46 (4/24)	CD13.32:5, CD13.32:6	53 (3/26)
CD12.76:1, CD12.76:2	OC	CD13.32:7, CD13.32:8	53 (3/26)
CD12.76:3, CD12.76:4	OC	CD13.32:9	53 (3/26)
CD12.76:5	OC	CD13.36:1	16 (2/13)
CD12.80:1	OC	CD13.40:1, CD13.40:2	26 (9/17)
CD12.84:1, CD12.84:2	30 (10/19)	CD14.00:1	OC
CD13.00:1	46 (4/24)	CD15.00:1	20 (3/15)
CD13.02:1	20 (3/15)	CD15.02:1	20 (3/15)
CD13.04:1, CD13.04:2	20 (3/15)	CD15.04:1, CD15.04:2	20 (3/15)
CD13.04:3, CD13.04:4	OC	CD15.04:3, CD15.04:4	9 (09/10)
CD13.08:1, CD13.08:2	48 (11/24)	CD15.04:5, CD15.04:6	9 (09/10)
CD13.08:3, CD13.08:4	49 (2/25)	CD15.04:7, CD15.04:8	9 (09/10)
CD13.08:5, CD13.08:6	49 (2/25)	CD15.08:1	OC
CD13.08:7, CD13.08:8	51 (7/25)	CD15.12:1, CD15.12:2	22 (1/16)
CD13.08:9, CD13.08:10	51 (7/25)	CD15.12:2.1	22 (1/16)
CD13.08:11, CD13.08:12	51 (7/25)	CD15.12:3, CD15.12:4	16 (2/13)
CD13.08:13, CD13.08:14	51 (7/25)	CD15.12:5, CD15.12:6	16 (2/13)
CD13.08:15, CD13.08:16	51 (7/25)	CD15.16:1, CD15.16:2	2 (07/07)
CD13.10:1	OC	CD15.16:3, CD15.16:4	43 (5/23)
CD13.12:1, CD13.12:2	34 (10/20)	CD15.16:5, CD15.16:6	43 (5/23)
CD13.12:3, CD13.12:4	34 (10/20)	CD15.16:7	43 (5/23)
CD13.16:1	OC	CD15.20:1, CD15.20:2	31 (1/20)
CD13.18:1, CD13.18:2	25 (3/17)	CD15.20:3	31 (1/20)
CD13.20:1, CD13.20:2	42 (2/23)	CD15.24:1, CD15.24:2	3 (10/07)
CD13.20:3, CD13.20:4	42 (2/23)	CD15.24:3	3 (10/07)
CD13.20:5, CD13.20:6	42 (2/23)	CD15.28:1	OC
CD13.21:1	46 (4/24)	CD15.32:1, CD15.32:2	31 (1/20)
CD13.24:1, CD13.24:2	18 (3/14)	CD15.32:3, CD15.32:4	44 (9/23)

Page No.	Supp. No.	Page No.	Supp. No.
CD15.34:1, CD15.34:2	25 (3/17)	CD16.04:7	53 (3/26)
CD15.36:1, CD15.36:2	40 (6/22)	CD16.08:1, CD16.08:2	52 (11/25)
CD15.36:3, CD15.36:4	40 (6/22)	CD16.08:3, CD16.08:4	52 (11/25)
CD15.40:1, CD15.40:2	2 (07/07)	CD16.08:5, CD16.08:6	52 (11/25)
CD15.44:1, CD15.44:2	31 (1/20)	CD16.08:7	52 (11/25)
CD15.44:3	44 (9/23)	CD16.12:1, CD16.12:2	52 (11/25)
CD15.48:1, CD15.48:2	31 (1/20)	CD16.12:3, CD16.12:4	52 (11/25)
CD15.48:3, CD15.48:4	31 (1/20)	CD16.12:5, CD16.12:6	52 (11/25)
CD15.48:5, CD15.48:6	41 (10/22)	CD16.12:7, CD16.12:8	53 (3/26)
CD15.52:1, CD15.52:2	48 (11/24)	CD16.12:9, CD16.12:10	53 (3/26)
CD15.56:1, CD15.56:2	OC	CD16.12:11	53 (3/26)
CD15.60:1, CD15.60:2	9 (09/10)	CD16.16:1, CD16.16:2	52 (11/25)
CD15.60:3, CD15.60:4	9 (09/10)	CD16.16:3, CD16.16:4	52 (11/25)
CD15.60:5, CD15.60:6	9 (09/10)	CD16.16:5, CD16.16:6	52 (11/25)
CD15.60:7, CD15.60:8	46 (4/24)	CD16.16:7, CD16.16:8	52 (11/25)
CD15.60:8.1	46 (4/24)	CD16.16:9, CD16.16:10	52 (11/25)
CD15.60:9, CD15.60:10	9 (09/10)	CD16.16:11, CD16.16:12	52 (11/25)
CD15.60:11, CD15.60:12	9 (09/10)	CD16.16:13, CD16.16:14	52 (11/25)
CD15.60:13, CD15.60:14	9 (09/10)	CD16.16:15, CD16.16:16	53 (3/26)
CD15.60:15, CD15.60:16	9 (09/10)	CD16.16:16.1	53 (3/26)
CD15.60:17, CD15.60:18	9 (09/10)	CD16.16:17, CD16.16:18	52 (11/25)
CD15.60:19, CD15.60:20	51 (7/25)	CD16.16:19, CD16.16:20	52 (11/25)
CD15.60:21, CD15.60:22	51 (7/25)	CD16.16:21, CD16.16:22	52 (11/25)
CD15.60:23	51 (7/25)	CD16.16:23, CD16.16:24	52 (11/25)
CD15.64:1, CD15.64:2	52 (11/25)	CD16.20:1, CD16.20:2	52 (11/25)
CD15.64:3, CD15.64:4	52 (11/25)	CD16.20:3, CD16.20:4	52 (11/25)
CD15.64:5, CD15.64:6	52 (11/25)	CD16.20:5, CD16.20:6	52 (11/25)
CD15.64:7, CD15.64:8	52 (11/25)	CD16.20:7, CD16.20:8	52 (11/25)
CD15.64:9, CD15.64:10	52 (11/25)	CD16.20:9, CD16.20:10	52 (11/25)
CD15.64:11, CD15.64:12	52 (11/25)	CD16.20:11, CD16.20:12	52 (11/25)
CD15.64:13, CD15.64:14	52 (11/25)	CD16.20:13, CD16.20:14	53 (3/26)
CD15.64:15	52 (11/25)	CD16.20:15, CD16.20:16	53 (3/26)
CD15.68:1, CD15.68:2	41 (10/22)	CD16.20:17	53 (3/26)
CD15.72:1, CD15.72:2	OC	CD16.24:1, CD16.24:2	22 (1/16)
CD16.00:1	3 (10/07)	CD16.24:3, CD16.24:4	53 (3/26)
CD16.04:1, CD16.04:2	53 (3/26)	CD16.24:5, CD16.24:6	53 (3/26)
CD16.04:3, CD16.04:4	53 (3/26)	CD16.24:7, CD16.24:8	53 (3/26)
CD16.04:5, CD16.04:6	53 (3/26)	CD16.24:9, CD16.24:10	53 (3/26)

Page No.	Supp. No.	Page No.	Supp. No.
CD16.24:11, CD16.24:12	53 (3/26)	CD17.08:1, CD17.08:2	53 (3/26)
CD16.24:13, CD16.24:14	53 (3/26)	CD17.08:3, CD17.08:4	53 (3/26)
CD16.24:15, CD16.24:16	53 (3/26)	CD17.08:5, CD17.08:6	53 (3/26)
CD16.24:17, CD16.24:18	53 (3/26)	CD17.08:7, CD17.08:8	53 (3/26)
CD16.24:19, CD16.24:20	53 (3/26)	CD17.08:9	53 (3/26)
CD16.24:21, CD16.24:22	53 (3/26)	CD17.08:11, CD17.08:12	53 (3/26)
CD16.24:23	53 (3/26)	CD17.08:13, CD17.08:14	53 (3/26)
CD16.28:1, CD16.28:2	40 (6/22)	CD17.08:15, CD17.08:16	53 (3/26)
CD16.28:3, CD16.28:4	40 (6/22)	CD17.10:1	53 (3/26)
CD16.28:5, CD16.28:6	40 (6/22)	CD17.12:1, CD17.12:2	53 (3/26)
CD16.28:7, CD16.28:8	51 (7/25)	CD17.12:3, CD17.12:4	53 (3/26)
CD16.28:9, CD16.28:10	51 (7/25)	CD17.12:5, CD17.12:6	53 (3/26)
CD16.32:1, CD16.32:2	OC	CD17.12:7, CD17.12:8	53 (3/26)
CD16.33:1, CD16.33:2	44 (9/23)	CD17.12:9, CD17.12:10	53 (3/26)
CD16.33:3, CD16.33:4	44 (9/23)	CD17.12:11, CD17.12:12	53 (3/26)
CD16.36:1, CD16.36:2	4 (10/08)	CD17.12:13, CD17.12:14	53 (3/26)
CD16.40:1	OC	CD17.12:15, CD17.12:16	53 (3/26)
CD16.44:1	30 (10/19)	CD17.12:17, CD17.12:18	53 (3/26)
CD16.48:1	OC	CD17.12:19, CD17.12:20	53 (3/26)
CD16.52:1	OC	CD17.12:21, CD17.12:22	53 (3/26)
CD16.56:1	OC	CD17.12:23, CD17.12:24	53 (3/26)
CD16.60:1, CD16.60:2	30 (10/19)	CD17.12:25, CD17.12:26	53 (3/26)
CD16.60:3	46 (4/24)	CD17.16:1, CD17.16:2	53 (3/26)
CD17.00:1	53 (3/26)	CD17.16:3, CD17.16:4	53 (3/26)
CD17.04:1, CD17.04:2	53 (3/26)	CD17.16:5, CD17.16:6	53 (3/26)
CD17.04:3, CD17.04:4	53 (3/26)	CD17.16:7, CD17.16:8	53 (3/26)
CD17.04:5, CD17.04:6	53 (3/26)	CD17.16:9, CD17.16:10	53 (3/26)
CD17.04:7, CD17.04:8	53 (3/26)	CD17.16:11, CD17.16:12	53 (3/26)
CD17.04:9, CD17.04:10	53 (3/26)	CD17.16:13, CD17.16:14	53 (3/26)
CD17.04:11, CD17.04:12	53 (3/26)	CD17.16:15	53 (3/26)
CD17.04:13, CD17.04:14	53 (3/26)	CD17.16:17, CD17.16:18	32 (4/20)
CD17.04:15, CD17.04:16	53 (3/26)	CD17.16:19, CD17.16:20	32 (4/20)
CD17.04:17, CD17.04:18	53 (3/26)	CD17.16:21, CD17.16:22	32 (4/20)
CD17.04:19, CD17.04:20	53 (3/26)	CD17.16:23, CD17.16:24	32 (4/20)
CD17.04:21, CD17.04:22	53 (3/26)	CD17.16:25, CD17.16:26	32 (4/20)
CD17.04:23, CD17.04:24	53 (3/26)	CD17.16:27, CD17.16:28	32 (4/20)
CD17.04:25, CD17.04:26	53 (3/26)	CD17.16:29, CD17.16:30	43 (5/23)
CD17.04:27, CD17.04:28	53 (3/26)	CD17.16:30.1,	43 (5/23)

Page No.	Supp. No.
CD17.16:30.2	
CD17.16:31, CD17.16:32	40 (6/22)
CD17.16:32.1, CD17.16:32.2	32 (4/20)
CD17.16:33, CD17.16:34	41 (10/22)
CD17.16:34.1	41 (10/22)
CD17.16:35, CD17.16:36	22 (1/16)
CD17.16:37, CD17.16:38	38 (11/21)
CD17.16:39, CD17.16:40	42 (2/23)
CD17.16:41, CD17.16:42	42 (2/23)
CD17.20:1, CD17.20:2	53 (3/26)
CD17.20:3, CD17.20:4	53 (3/26)
CD17.20:5, CD17.20:6	53 (3/26)
CD17.20:7, CD17.20:8	53 (3/26)
CD17.20:9, CD17.20:10	53 (3/26)
CD17.20:11, CD17.20:12	34 (10/20)
CD17.20:13	32 (4/20)
CD17.20:14.1	12 (10/11)
CD17.20:15, CD17.20:16	OC
CD17.20:17, CD17.20:18	52 (11/25)
CD17.20:19, CD17.20:20	48 (11/24)
CD17.20:21, CD17.20:22	45 (1/24)
CD17.20:23, CD17.20:24	45 (1/24)
CD17.20:25, CD17.20:26	45 (1/24)
CD17.24:1, CD17.24:2	50 (5/25)
CD17.24:2.1	50 (5/25)
CD17.24:3, CD17.24:4	40 (6/22)
CD17.24:5, CD17.24:6	40 (6/22)
CD17.24:7, CD17.24:8	40 (6/22)
CD17.24:9, CD17.24:10	40 (6/22)
CD17.24:11, CD17.24:12	40 (6/22)
CD17.24:13, CD17.24:14	53 (3/26)
CD17.24:17, CD17.24:18	30 (10/19)
CD17.24:19, CD17.24:20	30 (10/19)
CD17.24:21	30 (10/19)
CD17.28:1, CD17.28:2	40 (6/22)
CD17.28:3, CD17.28:4	45 (1/24)
CD17.28:5, CD17.28:6	40 (6/22)
CD17.28:7, CD17.28:8	50 (5/25)
CD17.28:9, CD17.28:10	53 (3/26)
CD17.28:11, CD17.28:12	53 (3/26)
CD17.28:13, CD17.28:14	53 (3/26)
CD17.28:15, CD17.28:16	53 (3/26)
CD17.32:1, CD17.32:2	45 (1/24)
CD17.32:2.1	45 (1/24)
CD17.32:3, CD17.32:4	32 (4/20)
CD17.32:5, CD17.32:6	32 (4/20)
CD17.32:7, CD17.32:8	32 (4/20)
CD17.32:9, CD17.32:10	32 (4/20)
CD17.32:11, CD17.32:12	32 (4/20)
CD17.32:13, CD17.32:14	32 (4/20)
CD17.32:15, CD17.32:16	32 (4/20)
CD17.32:17, CD17.32:18	32 (4/20)
CD17.36:1, CD17.36:2	53 (3/26)
CD17.36:2.1	53 (3/26)
CD17.36:3, CD17.36:4	30 (10/19)
CD17.36:5, CD17.36:6	40 (6/22)
CD17.36:7, CD17.36:8	40 (6/22)
CD17.36:9, CD17.36:10	46 (4/24)
CD17.36:10.1	46 (4/24)
CD17.36:11, CD17.36:12	OC
CD17.36:13, CD17.36:14	OC
CD17.36:15, CD17.36:16	OC
CD17.36:17, CD17.36:18	22 (1/16)
CD17.36:19, CD17.36:20	47 (8/24)
CD17.36:21, CD17.36:22	47 (8/24)
CD17.36:23, CD17.36:24	50 (5/25)
CD17.36:25, CD17.36:26	53 (3/26)
CD17.36.27	53 (3/26)
CD17.37:1	53 (3/26)
CD17.38:1, CD17.38:2	53 (3/26)
CD17.38:3, CD17.38:4	53 (3/26)
CD17.38:5, CD17.38:6	53 (3/26)
CD17.38:7, CD17.38:8	53 (3/26)
CD17.38:9, CD17.38:10	53 (3/26)
CD17.38:11, CD17.38:12	53 (3/26)

Page No.	Supp. No.	Page No.	Supp. No.
CD17.38:13, CD17.38:14	53 (3/26)	CRT:11, CRT:12	OC
CD17.38:15, CD17.38:16	53 (3/26)	CRT:13, CRT:14	OC
CD17.38:17, CD17.38:18	53 (3/26)	CRT:15, CRT:16	OC
CD17.38:19, CD17.38:20	53 (3/26)	CRT:17, CRT:18	OC
CD17.38:21, CD17.38:22	53 (3/26)	CRT:19, CRT:20	OC
CD17.38:23, CD17.38:24	53 (3/26)	CRT:21, CRT:22	OC
CD17.38:25, CD17.38:26	53 (3/26)	CRT:23, CRT:24	OC
CD17.38:27, CD17.38:28	53 (3/26)	CRT:25, CRT:26	OC
CD17.38:29, CD17.38:30	53 (3/26)	CRT:27, CRT:28	OC
CD17.38:31, CD17.38:32	53 (3/26)	CRT:29, CRT:30	OC
CD17.40:1, CD17.40:2	53 (3/26)	CRT:31, CRT:32	OC
CD17.40:3, CD17.40:4	53 (3/26)	CRT:33, CRT:34	OC
CD17.40:4.1	53 (3/26)	CRT:35, CRT:36	OC
CD17.40:5, CD17.40:6	30 (10/19)	CRT:37, CRT:38	OC
CD17.40:7, CD17.40:8	30 (10/19)	CRT:39, CRT:40	OC
CD17.40:8.1	30 (10/19)	CRT:41, CRT:42	OC
CD17.40:9, CD17.40:10	25 (3/17)	CRT:43, CRT:44	OC
CD17.40:11, CD17.40:12	25 (3/17)	CRT:45, CRT:46	OC
CD17.40:13, CD17.40:14	25 (3/17)	CRT:47, CRT:48	OC
CD17.40:15, CD17.40:16	29 (2/19)	CRT:49, CRT:50	OC
CD17.40:17, CD17.40:18	42 (2/23)	CRT:51, CRT:52	OC
CD17.40:19, CD17.40:20	52 (11/25)	CRT:53, CRT:54	OC
CD17.40:21, CD17.40:22	53 (3/26)	CRT:55, CRT:56	OC
CD17.40:23, CD17.40:24	53 (3/26)	CRT:57, CRT:58	OC
CD17.40:25, CD17.40:26	53 (3/26)	CRT:59, CRT:60	OC
CD17.40:27, CD17.40:28	53 (3/26)	CRT:61, CRT:62	OC
CD17.40:29, CD17.40:30	53 (3/26)	CRT:63, CRT:64	OC
CD17.40:31, CD17.40:32	53 (3/26)	CRT:65, CRT:66	OC
CD17.40:33, CD17.40:34	53 (3/26)	CRT:67, CRT:68	OC
CD17.40:35, CD17.40:36	53 (3/26)	CRT:69, CRT:70	OC
CD17.40:37, CD17.40:38	53 (3/26)	CRT:71, CRT:72	OC
SR:1, SR:2	36 (5/21)	CRT:73, CRT:74	OC
SR:3	36 (5/21)	CRT:75, CRT:76	OC
CRT:1, CRT:2	OC	CRT:77	OC
CRT:3, CRT:4	OC	ODT:1, ODT:2	12 (10/11)
CRT:5, CRT:6	OC	ODT:3, ODT:4	12 (10/11)
CRT:7, CRT:8	OC	ODT:5, ODT:6	12 (10/11)
CRT:9, CRT:10	OC	ODT:6.1	12 (10//11)

Page No.	Supp. No.	Page No.	Supp. No.
ODT:7, ODT:8	OC	ODT:83, ODT:84	OC
ODT:9, ODT:10	OC	ODT:85, ODT:86	OC
ODT:11, ODT:12	OC	ODT:87, ODT:88	OC
ODT:13, ODT:14	OC	ODT:89, ODT:90	17 (7/13)
ODT:15, ODT:16	OC	ODT:91, ODT:92	OC
ODT:17, ODT:18	OC	ODT:93, ODT:94	OC
ODT:19, ODT:20	OC	ODT:95, ODT:96	OC
ODT:21, ODT:22	OC	ODT:97, ODT:98	OC
ODT:23, ODT:24	OC	ODT:99, ODT:100	OC
ODT:25, ODT:26	OC	ODT:101, ODT:102	OC
ODT:27, ODT:28	OC	ODT:103, ODT:104	9 (09/10)
ODT:29, ODT:30	OC	ODT:105, ODT:106	OC
ODT:31, ODT:32	OC	ODT:107, ODT:108	OC
ODT:33, ODT:34	OC	ODT:109, ODT:110	3 (10/07)
ODT:35, ODT:36	OC	ODT:111, ODT:112	3 (10/07)
ODT:37, ODT:38	OC	ODT:113, ODT:114	3 (10/07)
ODT:39, ODT:40	OC	ODT:115, ODT:116	3 (10/07)
ODT:41, ODT:42	OC	ODT:117, ODT:118	3 (10/07)
ODT:43, ODT:44	OC	ODT:119, ODT:120	3 (10/07)
ODT:45, ODT:46	OC	ODT:121, ODT:122	3 (10/07)
ODT:47, ODT:48	OC	ODT:123, ODT:124	3 (10/07)
ODT:49, ODT:50	OC	ODT:125, ODT:126	9 (09/10)
ODT:51, ODT:52	OC	ODT:127, ODT:128	3 (10/07)
ODT:53, ODT:54	OC	ODT:129, ODT:130	3 (10/07)
ODT:55, ODT:56	OC	ODT:131, ODT:132	3 (10/07)
ODT:57, ODT:58	OC	ODT:133, ODT:134	4 (10/08)
ODT:59, ODT:60	OC	ODT:135, ODT:136	9 (09/10)
ODT:61, ODT:62	OC	ODT:137, ODT:138	12 (10/11)
ODT:63, ODT:64	OC	ODT:139, ODT:140	12 (10/11)
ODT:65, ODT:66	OC	ODT:141, ODT:142	12 (10/11)
ODT:67, ODT:68	OC	ODT:143, ODT:144	12 (10/11)
ODT:69, ODT:70	OC	ODT:145, ODT:146	12 (10/11)
ODT:71, ODT:72	OC	ODT:147, ODT:148	12 (10/11)
ODT:73, ODT:74	OC	ODT:149, ODT:150	12 (10/11)
ODT:75, ODT:76	OC	ODT:151, ODT:152	15 (10/12)
ODT:77, ODT:78	OC	ODT:153, ODT:154	15 (10/12)
ODT:79, ODT:80	OC	ODT:155, ODT:156	24 (7/16)
ODT:81, ODT:82	OC	ODT:157, ODT:158	24 (7/16)

Page No.	Supp. No.	Page No.	Supp. No.
ODT:159, ODT:160	24 (7/16)	ODT:235, ODT:236	44 (9/23)
ODT:161, ODT:162	24 (7/16)	ODT:237, ODT:238	44 (9/23)
ODT:163, ODT:164	24 (7/16)	ODT:239, ODT:240	44 (9/23)
ODT:165, ODT:166	22 (1/16)	ODT:241, ODT:242	44 (9/23)
ODT:167, ODT:168	22 (1/16)	ODT:243, ODT:244	44 (9/23)
ODT:169, ODT:170	22 (1/16)	ODT:245, ODT:246	44 (9/23)
ODT:171, ODT:172	22 (1/16)	ODT:247, ODT:248	44 (9/23)
ODT:173, ODT:174	22 (1/16)	ODT:249, ODT:250	45 (1/24)
ODT:175, ODT:176	24 (7/16)	ODT:251, ODT:252	45 (1/24)
ODT:177, ODT:178	24 (7/16)	ODT:253, ODT:254	45 (1/24)
ODT:179, ODT:180	30 (10/19)	ODT:255, ODT:256	48 (11/24)
ODT:181, ODT:182	30 (10/19)	ODT:257, ODT:258	49 (2/25)
ODT:183, ODT:184	30 (10/19)	ODT:259, ODT:260	49 (2/25)
ODT:185, ODT:186	30 (10/19)	ODT:261, ODT:262	49 (2/25)
ODT:187, ODT:188	30 (10/19)	ODT:263, ODT:264	49 (2/25)
ODT:189, ODT:190	30 (10/19)	ODT:265, ODT:266	50 (5/25)
ODT:191, ODT:192	30 (10/19)	ODT:267, ODT:268	53 (3/26)
ODT:193, ODT:194	30 (10/19)	ODT:269, ODT:270	53 (3/26)
ODT:195, ODT:196	30 (10/19)	ODT:271, ODT:272	53 (3/26)
ODT:197, ODT:198	30 (10/19)	ODT:273, ODT:274	53 (3/26)
ODT:199, ODT:200	30 (10/19)	ODT:275	53 (3/26)
ODT:201, ODT:202	30 (10/19)	CHi:1, CHi:2	41 (10/22)
ODT:203, ODT:204	30 (10/19)	CHi:3, CHi:4	41 (10/22)
ODT:205, ODT:206	30 (10/19)	CHi:5, CHi:6	41 (10/22)
ODT:207, ODT:208	30 (10/19)	CHi:7, CHi:8	41 (10/22)
ODT:209, ODT:210	30 (10/19)	CHi:9, CHi:10	41 (10/22)
ODT:211, ODT:212	39 (3/22)	CHi:11, CHi:12	41 (10/22)
ODT:213, ODT:214	38 (11/21)	CHi:13, CHi:14	41 (10/22)
ODT:215, ODT:216	38 (11/21)	CHi:15, CHi:16	41 (10/22)
ODT:217, ODT:218	38 (11/21)	CHi:17, CHi:18	41 (10/22)
ODT:219, ODT:220	38 (11/21)	CDi:1, CDi:2	53 (3/26)
ODT:221, ODT:222	40 (6/22)	CDi:3, CDi:4	53 (3/26)
ODT:223, ODT:224	40 (6/22)	CDi:5, CDi:6	53 (3/26)
ODT:225, ODT:226	44 (9/23)	CDi:7, CDi:8	53 (3/26)
ODT:227, ODT:228	44 (9/23)	CDi:9, CDi:10	53 (3/26)
ODT:229, ODT:230	44 (9/23)	CDi:11, CDi:12	53 (3/26)
ODT:231, ODT:232	44 (9/23)	CDi:13, CDi:14	53 (3/26)
ODT:233, ODT:234	44 (9/23)	CDi:15, CDi:16	53 (3/26)

Page No.	Supp. No.	Page No.	Supp. No.
CDi:17, CDi:18	53 (3/26)	CDi:93, CDi:94	53 (3/26)
CDi:19, CDi:20	53 (3/26)	CDi:95, CDi:96	53 (3/26)
CDi:21, CDi:22	53 (3/26)	CDi:97, CDi:98	53 (3/26)
CDi:23, CDi:24	53 (3/26)	CDi:99, CDi:100	53 (3/26)
CDi:25, CDi:26	53 (3/26)	CDi:101, CDi:102	53 (3/26)
CDi:27, CDi:28	53 (3/26)	CDi:103, CDi:104	53 (3/26)
CDi:29, CDi:30	53 (3/26)	CDi:105, CDi:106	53 (3/26)
CDi:31, CDi:32	53 (3/26)	CDi:107, CDi:108	53 (3/26)
CDi:33, CDi:34	53 (3/26)	CDi:109, CDi:110	53 (3/26)
CDi:35, CDi:36	53 (3/26)	CDi:111, CDi:112	53 (3/26)
CDi:37, CDi:38	53 (3/26)	CDi:113, CDi:114	53 (3/26)
CDi:39, CDi:40	53 (3/26)	CDi:115, CDi:116	53 (3/26)
CDi:41, CDi:42	53 (3/26)	CDi:117, CDi:118	53 (3/26)
CDi:43, CDi:44	53 (3/26)	CDi:119, CDi:120	53 (3/26)
CDi:45, CDi:46	53 (3/26)	CDi:121, CDi:122	53 (3/26)
CDi:47, CDi:48	53 (3/26)	CDi:123, CDi:124	53 (3/26)
CDi:49, CDi:50	53 (3/26)	CDi:125, CDi:126	53 (3/26)
CDi:51, CDi:52	53 (3/26)	CDi:127, CDi:128	53 (3/26)
CDi:53, CDi:54	53 (3/26)	CDi:129, CDi:130	53 (3/26)
CDi:55, CDi:56	53 (3/26)	CDi:131, CDi:132	53 (3/26)
CDi:57, CDi:58	53 (3/26)	CDi:133, CDi:134	53 (3/26)
CDi:59, CDi:60	53 (3/26)	CDi:135, CDi:136	53 (3/26)
CDi:61, CDi:62	53 (3/26)	CDi:137, CDi:138	53 (3/26)
CDi:63, CDi:64	53 (3/26)	CDi:139, CDi:140	53 (3/26)
CDi:65, CDi:66	53 (3/26)	CDi:141, CDi:142	53 (3/26)
CDi:67, CDi:68	53 (3/26)	CDi:143, CDi:144	53 (3/26)
CDi:69, CDi:70	53 (3/26)	CDi:145, CDi:146	53 (3/26)
CDi:71, CDi:72	53 (3/26)	CDi:147, CDi:148	53 (3/26)
CDi:73, CDi:74	53 (3/26)	CDi:149, CDi:150	53 (3/26)
CDi:75, CDi:76	53 (3/26)	CDi:151, CDi:152	53 (3/26)
CDi:77, CDi:78	53 (3/26)	CDi:153, CDi:154	53 (3/26)
CDi:79, CDi:80	53 (3/26)	CDi:155, CDi:156	53 (3/26)
CDi:81, CDi:82	53 (3/26)		
CDi:83, CDi:84	53 (3/26)		
CDi:85, CDi:86	53 (3/26)		
CDi:87, CDi:88	53 (3/26)		
CDi:89, CDi:90	53 (3/26)		
CDi:91, CDi:92	53 (3/26)		

TABLE OF CONTENTS

VOLUME I

Supplement History Table

Charter and Related Private Laws

Title 1 General Provisions

Title 2 Administration

Title 3 Personnel

Title 4 Procurement

Title 5 Revenue and Finance

Title 6 Business Licenses and Regulations

Title 7 Alcoholic Beverages

Title 8 Animals

Title 9 (Reserved)

Title 10 Health and Safety

Title 11 Public Peace, Morals and Welfare

VOLUME II

Title 12 Vehicles and Traffic

Title 13 Streets, Sidewalks and Public Places

Title 14 (Reserved)

Title 15 Water, Sewers and Other Public Services

Title 16 Buildings and Construction

Title 17 Zoning

Statutory References

Tables

Index

PREFACE

This Code constitutes a complete codification of the general and permanent ordinances of the Metropolitan Government of Nashville and Davidson County, Tennessee.

Source materials used in the preparation of the Code were the ordinances adopted by the city council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of any ordinance included herein.

The Code has been conveniently arranged in titles and chapters, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of three parts separated by a decimal. The figure before the first decimal refers to the title number. The figure after the first decimal is the chapter number. The figure after the second decimal refers to the position of the section within the chapter. Thus, the first section of chapter 1 is numbered 1.01.010. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 10.04.010 and 10.04.020 is desired to be added, such new section would be numbered 10.04.015. New chapters may be included in the same manner. If the new material is to be included between chapters 11.04 and 11.08, it will be designated as chapter 11.06.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters/numbers to the left of the dash are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

CHARTER	CH:1
APPENDICES TO CHARTER	CHA:1
RELATED PRIVATE LAWS	RPL:1
CHARTER AND RELATED LAWS COMPARATIVE TABLE	CHCT:1
CODE	CD1.01:1
STATE LAW REFERENCE TABLE	SRT:1

CROSS-REFERENCE TABLE CRT:1

ORDINANCE LIST AND DISPOSITION TABLE ODT:1

CHARTER INDEX CHi:1

CODE INDEX CDi:1

Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

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Copyright

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PROCEDURE FOR DRAFTING ORDINANCES

This code has been codified using a logical, expandable numbering system to allow for additions, repeals or amendments. When drafting ordinances, it is important to designate, within the ordinance, what specific portions of the code are affected. The ordinance(s) underlying the section being changed can be determined from the ordinance history note in parentheses at the end of each section.

Effect of Title.

The title of an ordinance and any introductory language appearing before the ordaining clause has no legal effect. The title may state that the ordinance repeals (or amends or adds) certain provisions, but in order for these changes to be effective, the intended repeal, amendment or addition must be set out following the ordaining clause.

Procedure When Amending Existing Code Material.

Amend the code section specifically. The underlying ordinance section may also be included.

Examples: § 3.04.020 of the _____ Municipal Code is amended to read as follows:

§ 3 of Ord. 319 and § 3.04.020 of the _____ Municipal Code are amended to read as follows:

If only a portion of a section is being amended, designate the specific portion:

Example: § 3.04.050(A)(2) of the _____ Municipal Code is amended to read as follows:

Procedure When Repealing Existing Code Material.

When repealing material, designate the specific portion of the code to be repealed. Include the underlying ordinance section if you wish; however, we consider both code section and underlying ordinance to be repealed whether you mention the underlying ordinance or not.

Examples: § 3.04.020 of the _____ Municipal Code is repealed.

§ 3 of Ord. 319 and § 3.04.020 of the _____ Municipal Code are repealed.

Subsection B of § 3.04.030 of the _____ Municipal Code is repealed.

Procedure When Adding New Material to Code.

When new provisions are to be added to the code, you should determine where the material would best fit within the subject matter of the existing section, chapter or title. If there is no existing section, chapter or title, you should assign a new section, chapter or title number. Our expandable decimal numbering system is designed to allow for the incorporation of new material without disturbing the numbering system of existing material.

The following language is sufficient to locate new material in the code:

Subsection D is added to § 5.10.040 of the _____ Municipal Code, to read as follows:

§ 5.10.033 is added to the _____ Municipal Code,

to read as follows:

Chapter 12.07 is added to the _____ Municipal Code, to read as follows:

If you have any questions as to the proper placement of a new provision, please contact us:

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this Code of Laws will be able to gain a more complete picture of the Code's historical evolution.

Ord. No./Res. No.	Included/ Omitted	Supp. No.
Supp. No. 10		
BL2002-1180	Included	10
BL2010-650	Included	10
BL2010-710	Included	10
BL2010-714	Included	10
BL2010-725	Included	10
BL2010-729	Included	10
BL2010-732	Omitted	10
BL2010-734	Included	10
BL2010-735	Included	10
BL2010-736	Omitted	10
BL2010-737	Omitted	10
BL2010-738	Omitted	10
BL2010-740	Omitted	10
BL2010-741	Omitted	10
BL2010-743	Omitted	10
BL2010-744	Omitted	10
BL2010-745	Included	10
BL2010-747	Included	10
BL2010-748	Included	10
BL2010-749	Included	10
BL2010-750	Omitted	10
BL2010-751	Included	10
BL2010-752	Omitted	10
BL2010-755	Omitted	10
BL2010-756	Omitted	10
BL2010-757	Omitted	10
BL2010-758	Included	10
BL2010-759	Included	10
BL2010-760	Omitted	10
BL2010-761	Included	10
BL2010-762	Included	10
BL2010-764	Omitted	10
BL2010-765	Omitted	10
BL2010-766	Omitted	10
BL2010-767	Omitted	10

Ord. No./Res. No.	Included/ Omitted	Supp. No.
RS2010-1119	Included	10
BL2010-769	Omitted	10
BL2010-771	Omitted	10
BL2010-773	Omitted	10
BL2010-775	Omitted	10
BL2010-776	Omitted	10
BL2010-777	Omitted	10
BL2010-778	Omitted	10
BL2010-780	Omitted	10
BL2010-781	Omitted	10
BL2010-782	Included	10
BL2010-785	Omitted	10
BL2010-787	Omitted	10
BL2010-788	Included	10
BL2010-789	Included	10
BL2010-790	Omitted	10
BL2010-791	Omitted	10
BL2010-793	Included	10
BL2010-794	Included	10
BL2010-797	Omitted	10
Supp. No. 11		
BL2010-731	Omitted	11
BL2010-772	Omitted	11
BL2010-795	Omitted	11
BL2010-796	Omitted	11
BL2010-798	Included	11
BL2010-799	Omitted	11
BL2010-800	Omitted	11
BL2010-801	Omitted	11
BL2010-802	Omitted	11
BL2010-803	Omitted	11
BL2010-804	Omitted	11
BL2010-805	Omitted	11
BL2010-806	Included	11
BL2010-807	Omitted	11
BL2010-809	Omitted	11
BL2010-810	Included	11
BL2010-811	Omitted	11
BL2010-812	Omitted	11
BL2010-813	Omitted	11
BL2010-814	Omitted	11
BL2010-815	Omitted	11
BL2010-816	Omitted	11
BL2010-817	Omitted	11
BL2010-818	Omitted	11
BL2010-819	Omitted	11
BL2010-820	Included	11
BL2010-821	Included	11
BL2010-823	Omitted	11

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2010-824	Omitted	11
BL2010-826	Included	11
BL2010-827	Omitted	11
BL2010-828	Omitted	11
BL2010-829	Omitted	11
BL2010-830	Omitted	11
BL2010-831	Omitted	11
BL2011-832	Omitted	11
BL2011-833	Omitted	11
BL2011-834	Included	11
BL2011-839	Omitted	11
BL2011-841	Omitted	11
BL2011-842	Omitted	11
BL2011-843	Omitted	11
BL2011-844	Omitted	11
BL2011-846	Omitted	11
BL2011-847	Omitted	11
BL2011-848	Omitted	11
BL2011-849	Omitted	11
BL2011-850	Omitted	11
BL2011-851	Omitted	11
BL2011-852	Omitted	11
BL2011-853	Omitted	11
BL2011-854	Omitted	11
BL2011-855	Omitted	11
BL2011-856	Omitted	11
BL2011-857	Omitted	11
Supp. No. 12		
88-526	Included	12
89-834	Included	12
BL2010-808	Included	12
BL2010-822	Omitted	12
BL2010-825	Included	12
BL2011-838	Included	12
BL2011-845	Omitted	12
BL2011-858	Omitted	12
BL2011-859	Included	12
BL2011-860	Omitted	12
BL2011-861	Included	12
BL2011-862	Omitted	12
BL2011-863	Included	12
BL2011-864	Omitted	12
BL2011-865	Omitted	12
BL2011-866	Omitted	12
BL2011-867	Omitted	12
BL2011-868	Omitted	12
BL2011-869	Included	12
BL2011-870	Included	12
BL2011-871	Omitted	12

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2011-872	Omitted	12
BL2011-873	Omitted	12
BL2011-874	Omitted	12
BL2011-875	Omitted	12
BL2011-876	Omitted	12
BL2011-877	Omitted	12
BL2011-878	Omitted	12
BL2011-879	Omitted	12
BL2011-880	Omitted	12
BL2011-881	Omitted	12
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BL2011-890	Omitted	12
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BL2011-892	Omitted	12
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BL2011-895	Omitted	12
BL2011-896	Included	12
BL2011-897	Included	12
BL2011-898	Included	12
BL2011-899	Omitted	12
BL2011-900	Included	12
BL2011-901	Omitted	12
BL2011-902	Included	12
BL2011-903	Included	12
BL2011-904	Omitted	12
BL2011-905	Omitted	12
BL2011-906	Included	12
BL2011-907	Omitted	12
BL2011-908	Omitted	12
BL2011-909	Omitted	12
BL2011-910	Omitted	12
BL2011-911	Omitted	12
BL2011-912	Included	12
BL2011-913	Omitted	12
BL2011-914	Omitted	12
BL2011-915	Omitted	12
BL2011-916	Included	12
BL2011-917	Omitted	12
BL2011-918	Omitted	12
BL2011-919	Omitted	12
BL2011-920	Omitted	12

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2011-921	Omitted	12
BL2011-922	Included	12
BL2011-923	Omitted	12
BL2011-924	Omitted	12
BL2011-925	Omitted	12
BL2011-926	Omitted	12
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BL2011-930	Omitted	12
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BL2011-938	Included	12
BL2011-939	Included	12
BL2011-940	Included	12
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BL2011-942	Omitted	12
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BL2011-955	Included	12
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BL2011-961	Omitted	12
BL2011-962	Included	12
BL2011-963	Omitted	12
BL2011-964	Omitted	12
BL2011-965	Omitted	12
BL2011-966	Omitted	12
BL2011-967	Omitted	12
BL2011-968	Omitted	12
BL2011-969	Omitted	12

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2011-970	Omitted	12
Supp. No. 13		
BL2011-1	Omitted	13
BL2011-2	Included	13
BL2011-3	Included	13
BL2011-4	Omitted	13
BL2011-5	Omitted	13
BL2011-6	Omitted	13
BL2011-7	Omitted	13
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BL2011-39	Omitted	13
BL2011-40	Included	13
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BL2011-42	Omitted	13
BL2011-43	Omitted	13
BL2011-44	Omitted	13
BL2011-45	Omitted	13
BL2011-46	Omitted	13
BL2011-47	Included	13

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2011-48	Omitted	13
BL2011-49	Omitted	13
BL2011-50	Omitted	13
BL2011-51	Omitted	13
BL2011-52	Omitted	13
BL2011-53	Omitted	13
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BL2011-77	Omitted	13
BL2011-78	Omitted	13
BL2011-79	Omitted	13
BL2011-80	Included	13
BL2011-81	Omitted	13
Supp. No. 14		
BL2011-82	Included	14
BL2011-83	Omitted	14
BL2011-84	Omitted	14
BL2011-85	Omitted	14
BL2011-86	Omitted	14
BL2011-87	Omitted	14
BL2012-88	Included	14
BL2012-89	Omitted	14
BL2012-90	Omitted	14
BL2012-91	Included	14
BL2012-92	Included	14
BL2012-93	Omitted	14
BL2012-94	Omitted	14
BL2012-95	Omitted	14

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2012-96	Omitted	14
BL2012-97	Omitted	14
BL2012-98	Omitted	14
BL2012-99	Omitted	14
BL2012-100	Omitted	14
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BL2012-121	Omitted	14
BL2012-122	Omitted	14
BL2012-123	Omitted	14
BL2012-124	Omitted	14
BL2012-125	Omitted	14
Supp. No. 15		
BL2012-117	Included	15
BL2012-126	Omitted	15
BL2012-127	Included	15
BL2012-128	Omitted	15
BL2012-129	Omitted	15
BL2012-130	Included	15
BL2012-131	Omitted	15
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BL2012-138	Omitted	15
BL2012-139	Omitted	15
BL2012-140	Omitted	15
BL2012-141	Omitted	15
BL2012-142	Included	15

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2012-143	Omitted	15
BL2012-144	Omitted	15
BL2012-145	Omitted	15
BL2012-146	Omitted	15
BL2012-147	Omitted	15
BL2012-148	Omitted	15
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BL2012-151	Omitted	15
BL2012-152	Omitted	15
BL2012-153	Omitted	15
BL2012-154	Omitted	15
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BL2012-187	Omitted	15
BL2012-188	Omitted	15
BL2012-189	Omitted	15
BL2012-190	Omitted	15
BL2012-191	Omitted	15

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2012-192	Omitted	15
BL2012-193	Omitted	15
BL2012-194	Omitted	15
BL2012-195	Omitted	15
BL2012-196	Omitted	15
BL2012-197	Omitted	15
BL2012-198	Omitted	15
BL2012-199	Omitted	15
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BL2012-203	Omitted	15
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BL2012-226	Omitted	15
BL2012-227	Omitted	15
BL2012-228	Included	15
BL2012-229	Included	15
BL2012-230	Omitted	15
BL2012-231	Omitted	15

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2012-232	Omitted	15
BL2012-233	Omitted	15
BL2012-234	Omitted	15
BL2012-235	Omitted	15
BL2012-236	Omitted	15
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BL2012-248	Omitted	15
BL2012-249	Omitted	15
BL2012-250	Omitted	15
BL2012-251	Omitted	15
BL2012-252	Omitted	15
Supp. No. 16		
BL2012-249	Included	16
BL2012-250	Included	16
BL2012-253	Omitted	16
BL2012-254	Omitted	16
BL2012-255	Omitted	16
BL2012-256	Omitted	16
BL2012-257	Included	16
BL2012-258	Omitted	16
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BL2012-262	Included	16
BL2012-263	Omitted	16
BL2012-264	Included	16
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BL2012-272	Omitted	16
BL2012-273	Omitted	16
BL2012-274	Omitted	16
BL2012-275	Omitted	16
BL2012-276	Omitted	16
BL2012-277	Omitted	16

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2012-278	Omitted	16
BL2012-279	Omitted	16
BL2012-280	Included	16
BL2012-281	Included	16
BL2012-282	Included	16
BL2012-283	Omitted	16
BL2012-284	Omitted	16
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BL2012-320	Omitted	16
BL2012-321	Omitted	16
BL2012-322	Omitted	16
BL2012-323	Omitted	16
BL2012-324	Omitted	16
BL2012-325	Omitted	16
BL2012-326	Omitted	16

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2012-327	Omitted	16
BL2012-328	Omitted	16
BL2012-329	Omitted	16
BL2012-330	Omitted	16
BL2012-331	Omitted	16
BL2012-332	Included	16
BL2012-333	Included	16
BL2012-334	Included	16
BL2012-335	Omitted	16
BL2012-336	Omitted	16
BL2012-337	Omitted	16
Supp. No. 17		
BL2012-151	Omitted	17
BL2012-283	Included	17
BL2012-291	Omitted	17
BL2012-292	Omitted	17
BL2012-305	Omitted	17
BL2013-338	Included	17
BL2013-339	Omitted	17
BL2013-340	Omitted	17
BL2013-341	Omitted	17
BL2013-342	Omitted	17
BL2013-343	Omitted	17
BL2013-344	Omitted	17
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BL2013-346	Omitted	17
BL2013-347	Omitted	17
BL2013-348	Omitted	17
BL2013-349	Omitted	17
BL2013-350	Omitted	17
BL2013-351	Omitted	17
BL2013-352	Omitted	17
BL2013-353	Omitted	17
BL2013-354	Omitted	17
BL2013-355	Omitted	17
BL2013-356	Omitted	17
BL2013-357	Omitted	17
BL2013-358	Omitted	17
BL2013-359	Omitted	17
BL2013-360	Omitted	17
BL2013-361	Omitted	17
BL2013-362	Omitted	17
BL2013-363	Omitted	17
BL2013-364	Omitted	17
BL2013-365	Omitted	17
BL2013-366	Omitted	17
BL2013-367	Omitted	17
BL2013-368	Omitted	17
BL2013-369	Included	17

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2013-370	Omitted	17
BL2013-371	Omitted	17
BL2013-372	Omitted	17
BL2013-373	Omitted	17
BL2013-374	Omitted	17
BL2013-375	Omitted	17
BL2013-376	Included	17
BL2013-377	Omitted	17
BL2013-378	Omitted	17
BL2013-379	Included	17
BL2013-380	Included	17
BL2013-381	Included	17
BL2013-382	Omitted	17
BL2013-383	Omitted	17
BL2013-384	Omitted	17
BL2013-385	Omitted	17
BL2013-386	Omitted	17
BL2013-387	Omitted	17
BL2013-388	Included	17
BL2013-389	Included	17
BL2013-390	Included	17
BL2013-391	Omitted	17
BL2013-392	Omitted	17
BL2013-393	Omitted	17
BL2013-394	Included	17
BL2013-395	Omitted	17
BL2013-396	Included	17
BL2013-397	Omitted	17
BL2013-398	Omitted	17
BL2013-399	Omitted	17
BL2013-400	Omitted	17
BL2013-401	Omitted	17
BL2013-402	Omitted	17
BL2013-403	Included	17
BL2013-404	Omitted	17
BL2013-405	Omitted	17
BL2013-406	Omitted	17
BL2013-407	Omitted	17
BL2013-408	Omitted	17
BL2013-409	Omitted	17
BL2013-410	Omitted	17
BL2013-411	Omitted	17
BL2013-412	Omitted	17
BL2013-413	Omitted	17
BL2013-414	Omitted	17
BL2013-415	Omitted	17
BL2013-416	Omitted	17
BL2013-417	Omitted	17
BL2013-418	Included	17

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2013-419	Included	17
BL2013-420	Included	17
BL2013-421	Included	17
BL2013-422	Omitted	17
BL2013-423	Omitted	17
BL2013-424	Omitted	17
BL2013-425	Omitted	17
BL2013-426	Omitted	17
BL2013-427	Omitted	17
BL2013-428	Omitted	17
BL2013-429	Omitted	17
BL2013-430	Omitted	17
BL2013-431	Omitted	17
BL2013-432	Omitted	17
BL2013-433	Included	17
BL2013-434	Omitted	17
BL2013-435	Omitted	17
BL2013-436	Omitted	17
BL2013-437	Omitted	17
BL2013-438	Omitted	17
BL2013-439	Omitted	17
BL2013-440	Omitted	17
BL2013-441	Omitted	17
BL2013-442	Omitted	17
BL2013-443	Omitted	17
BL2013-444	Omitted	17
BL2013-445	Omitted	17
BL2013-446	Included	17
BL2013-447	Omitted	17
BL2013-448	Omitted	17
BL2013-449	Omitted	17
BL2013-450	Omitted	17
BL2013-451	Omitted	17
BL2013-452	Included	17
BL2013-453	Omitted	17
BL2013-454	Omitted	17
BL2013-455	Omitted	17
BL2013-456	Omitted	17
BL2013-457	Omitted	17
BL2013-458	Omitted	17
BL2013-459	Omitted	17
BL2013-460	Omitted	17
BL2013-461	Omitted	17
BL2013-462	Omitted	17
BL2013-463	Omitted	17
BL2013-464	Omitted	17
BL2013-465	Omitted	17
BL2013-466	Omitted	17
BL2013-467	Omitted	17

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2013-468	Omitted	17
BL2013-469	Omitted	17
BL2013-470	Omitted	17
BL2013-471	Omitted	17
BL2013-472	Omitted	17
BL2013-473	Omitted	17
BL2013-474	Omitted	17
BL2013-475	Omitted	17
BL2013-476	Omitted	17
BL2013-477	Omitted	17
BL2013-478	Omitted	17
BL2013-479	Omitted	17
BL2013-480	Omitted	17
BL2013-481	Omitted	17
BL2013-482	Omitted	17
BL2013-483	Omitted	17
BL2013-484	Omitted	17
BL2013-485	Omitted	17
BL2013-486	Omitted	17
Supp. No. 18		
BL2012-103	Omitted	18
BL2013-469	Omitted	18
BL2013-476	Included	18
BL2013-487	Included	18
BL2013-488	Omitted	18
BL2013-489	Omitted	18
BL2013-490	Omitted	18
BL2013-491	Omitted	18
BL2013-492	Omitted	18
BL2013-493	Omitted	18
BL2013-494	Omitted	18
BL2013-495	Omitted	18
BL2013-496	Omitted	18
BL2013-497	Omitted	18
BL2013-498	Included	18
BL2013-499	Included	18
BL2013-500	Included	18
BL2013-501	Omitted	18
BL2013-502	Omitted	18
BL2013-503	Omitted	18
BL2013-504	Omitted	18
BL2013-505	Omitted	18
BL2013-506	Omitted	18
BL2013-507	Omitted	18
BL2013-508	Included	18
BL2013-509	Omitted	18
BL2013-510	Omitted	18
BL2013-511	Omitted	18
BL2013-512	Omitted	18

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2013-513	Omitted	18
BL2013-514	Omitted	18
BL2013-515	Omitted	18
BL2013-516	Included	18
BL2013-517	Included	18
BL2013-518	Omitted	18
BL2013-519	Omitted	18
BL2013-520	Omitted	18
BL2013-521	Omitted	18
BL2013-522	Omitted	18
BL2013-523	Omitted	18
BL2013-524	Omitted	18
BL2013-525	Omitted	18
BL2013-526	Included	18
BL2013-527	Omitted	18
BL2013-528	Omitted	18
BL2013-529	Omitted	18
BL2013-530	Omitted	18
BL2013-531	Omitted	18
BL2013-532	Omitted	18
BL2013-533	Omitted	18
BL2013-534	Omitted	18
BL2013-535	Omitted	18
BL2013-536	Omitted	18
BL2013-537	Omitted	18
BL2013-538	Omitted	18
BL2013-539	Omitted	18
BL2013-540	Omitted	18
BL2013-541	Omitted	18
BL2013-542	Omitted	18
BL2013-543	Included	18
BL2013-544	Included	18
BL2013-545	Omitted	18
BL2013-546	Omitted	18
BL2013-547	Omitted	18
BL2013-548	Omitted	18
BL2013-549	Omitted	18
BL2013-550	Included	18
BL2013-551	Included	18
BL2013-552	Included	18
BL2013-553	Omitted	18
BL2013-554	Omitted	18
BL2013-555	Omitted	18
BL2013-556	Omitted	18
BL2013-557	Omitted	18
BL2013-558	Omitted	18
BL2013-559	Omitted	18
BL2013-560	Omitted	18
BL2013-561	Omitted	18

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2013-562	Omitted	18
BL2013-563	Omitted	18
BL2013-564	Omitted	18
BL2013-565	Omitted	18
BL2013-566	Omitted	18
BL2013-567	Included	18
BL2013-568	Included	18
BL2013-569	Omitted	18
BL2013-570	Included	18
BL2013-571	Included	18
BL2013-572	Omitted	18
BL2013-573	Omitted	18
BL2013-574	Omitted	18
BL2013-575	Omitted	18
BL2013-576	Included	18
BL2013-577	Included	18
BL2013-578	Included	18
BL2013-579	Included	18
BL2013-580	Omitted	18
BL2013-581	Omitted	18
BL2013-582	Omitted	18
BL2013-583	Omitted	18
BL2013-584	Omitted	18
BL2013-585	Omitted	18
BL2013-586	Omitted	18
BL2013-587	Omitted	18
BL2013-588	Omitted	18
BL2013-589	Omitted	18
BL2013-590	Included	18
BL2013-591	Included	18
BL2013-592	Included	18
BL2013-593	Omitted	18
BL2013-594	Omitted	18
BL2013-595	Omitted	18
BL2013-596	Omitted	18
BL2013-597	Omitted	18
BL2013-598	Omitted	18
BL2013-599	Omitted	18
BL2013-600	Omitted	18
BL2013-601	Included	18
BL2013-602	Omitted	18
BL2013-603	Omitted	18
BL2013-604	Included	18
BL2013-605	Included	18
BL2013-606	Omitted	18
BL2013-607	Omitted	18
BL2013-608	Omitted	18
BL2013-609	Omitted	18
BL2013-610	Omitted	18

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2013-611	Omitted	18
BL2013-612	Omitted	18
BL2013-613	Omitted	18
BL2013-614	Omitted	18
BL2013-615	Omitted	18
BL2013-616	Omitted	18
BL2013-617	Omitted	18
BL2013-618	Omitted	18
BL2013-619	Omitted	18
BL2013-620	Omitted	18
BL2013-621	Omitted	18
BL2013-622	Omitted	18
BL2013-623	Omitted	18
BL2013-624	Omitted	18
BL2013-625	Omitted	18
BL2013-626	Omitted	18
BL2013-627	Omitted	18
BL2013-628	Omitted	18
BL2013-629	Included	18
BL2013-630	Omitted	18
BL2013-631	Omitted	18
BL2013-632	Omitted	18
BL2013-633	Included	18
BL2014-634	Omitted	18
BL2014-635	Omitted	18
BL2014-636	Omitted	18
BL2014-637	Omitted	18
BL2014-638	Omitted	18
BL2014-639	Omitted	18
BL2014-640	Omitted	18
BL2014-641	Omitted	18
BL2014-642	Omitted	18
BL2014-643	Omitted	18
BL2014-644	Omitted	18
BL2014-645	Omitted	18
BL2014-646	Omitted	18
BL2014-647	Omitted	18
BL2014-648	Omitted	18
BL2014-649	Omitted	18
BL2014-650	Omitted	18
BL2014-651	Omitted	18
BL2014-652	Omitted	18
BL2014-653	Omitted	18
BL2014-654	Included	18
BL2014-655	Omitted	18
BL2014-656	Omitted	18
BL2014-657	Omitted	18
BL2014-658	Omitted	18

Ord. No./Res. No.	Included/ Omitted	Supp. No.
Supp. No. 19		
BL2012-302	Omitted	19
BL2013-588	Omitted	19
BL2013-619	Omitted	19
BL2013-622	Omitted	19
BL2014-651	Included	19
BL2014-659	Omitted	19
BL2014-660	Included	19
BL2014-661	Omitted	19
BL2014-662	Omitted	19
BL2014-663	Omitted	19
BL2014-664	Omitted	19
BL2014-665	Omitted	19
BL2014-666	Omitted	19
BL2014-667	Included	19
BL2014-668	Omitted	19
BL2014-669	Omitted	19
BL2014-670	Omitted	19
BL2014-671	Omitted	19
BL2014-672	Omitted	19
BL2014-673	Omitted	19
BL2014-674	Omitted	19
BL2014-675	Omitted	19
BL2014-676	Omitted	19
BL2014-677	Omitted	19
BL2014-678	Omitted	19
BL2014-679	Omitted	19
BL2014-680	Omitted	19
BL2014-681	Omitted	19
BL2014-682	Omitted	19
BL2014-683	Omitted	19
BL2014-684	Included	19
BL2014-685	Included	19
BL2014-686	Omitted	19
BL2014-687	Omitted	19
BL2014-688	Omitted	19
BL2014-689	Omitted	19
BL2014-690	Omitted	19
BL2014-691	Omitted	19
BL2014-692	Omitted	19
BL2014-693	Omitted	19
BL2014-694	Omitted	19
BL2014-695	Omitted	19
BL2014-696	Included	19
BL2014-697	Included	19
BL2014-698	Omitted	19
BL2014-699	Omitted	19
BL2014-700	Omitted	19
BL2014-701	Omitted	19

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2014-702	Omitted	19
BL2014-703	Omitted	19
BL2014-704	Omitted	19
BL2014-705	Omitted	19
BL2014-706	Omitted	19
BL2014-707	Omitted	19
BL2014-708	Omitted	19
BL2014-709	Omitted	19
BL2014-710	Omitted	19
BL2014-711	Omitted	19
BL2014-712	Omitted	19
BL2014-713	Omitted	19
BL2014-714	Included	19
BL2014-715	Included	19
BL2014-716	Omitted	19
BL2014-717	Omitted	19
BL2014-718	Omitted	19
BL2014-719	Omitted	19
BL2014-720	Omitted	19
BL2014-721	Omitted	19
BL2014-722	Omitted	19
BL2014-723	Omitted	19
BL2014-724	Omitted	19
BL2014-725	Included	19
BL2014-726	Omitted	19
BL2014-727	Included	19
BL2014-728	Included	19
BL2014-729	Omitted	19
BL2014-730	Omitted	19
BL2014-731	Omitted	19
BL2014-732	Omitted	19
BL2014-733	Omitted	19
BL2014-734	Omitted	19
BL2014-735	Omitted	19
BL2014-736	Omitted	19
BL2014-737	Omitted	19
BL2014-738	Omitted	19
BL2014-739	Included	19
BL2014-740	Included	19
BL2014-741	Omitted	19
BL2014-742	Included	19
BL2014-743	Included	19
BL2014-744	Omitted	19
BL2014-745	Omitted	19
BL2014-746	Omitted	19
BL2014-747	Included	19
BL2014-748	Omitted	19
BL2014-749	Omitted	19
BL2014-750	Omitted	19

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2014-751	Omitted	19
BL2014-752	Omitted	19
BL2014-753	Omitted	19
BL2014-754	Omitted	19
BL2014-755	Omitted	19
BL2014-756	Omitted	19
BL2014-757	Omitted	19
BL2014-758	Omitted	19
BL2014-759	Omitted	19
BL2014-760	Omitted	19
BL2014-761	Omitted	19
BL2014-762	Omitted	19
BL2014-763	Omitted	19
BL2014-764	Omitted	19
BL2014-765	Omitted	19
BL2014-766	Omitted	19
BL2014-767	Omitted	19
BL2014-768	Omitted	19
BL2014-769	Included	19
BL2014-770	Included	19
BL2014-771	Included	19
BL2014-772	Included	19
BL2014-773	Omitted	19
BL2014-774	Omitted	19
BL2014-775	Omitted	19
BL2014-776	Omitted	19
BL2014-777	Included	19
BL2014-778	Included	19
BL2014-779	Included	19
BL2014-780	Omitted	19
BL2014-781	Included	19
BL2014-782	Omitted	19
BL2014-783	Omitted	19
BL2014-784	Omitted	19
BL2014-785	Omitted	19
BL2014-786	Omitted	19
BL2014-787	Omitted	19
BL2014-788	Omitted	19
BL2014-789	Omitted	19
BL2014-790	Omitted	19
BL2014-791	Omitted	19
BL2014-792	Omitted	19
BL2014-793	Omitted	19
BL2014-794	Omitted	19
BL2014-795	Omitted	19
BL2014-796	Omitted	19
BL2014-797	Omitted	19
BL2014-798	Omitted	19
BL2014-799	Omitted	19

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2014-800	Omitted	19
BL2014-801	Omitted	19
BL2014-802	Omitted	19
BL2014-803	Omitted	19
BL2014-804	Omitted	19
BL2014-805	Omitted	19
BL2014-806	Omitted	19
BL2014-807	Omitted	19
BL2014-808	Omitted	19
BL2014-809	Omitted	19
BL2014-810	Omitted	19
BL2014-811	Omitted	19
BL2014-812	Omitted	19
BL2014-813	Omitted	19
BL2014-814	Omitted	19
BL2014-815	Omitted	19
BL2014-816	Omitted	19
BL2014-817	Omitted	19
BL2014-818	Included	19
BL2014-819	Included	19
BL2014-820	Omitted	19
BL2014-821	Omitted	19
BL2014-822	Included	19
BL2014-823	Omitted	19
BL2014-824	Omitted	19
BL2014-825	Included	19
BL2014-826	Omitted	19
BL2014-827	Omitted	19
BL2014-828	Omitted	19
BL2014-829	Omitted	19
BL2014-830	Omitted	19
BL2014-831	Omitted	19
BL2014-832	Omitted	19
BL2014-833	Omitted	19
BL2014-834	Omitted	19
BL2014-835	Omitted	19
BL2014-836	Omitted	19
BL2014-837	Omitted	19
BL2014-838	Omitted	19
BL2014-839	Omitted	19
BL2014-840	Included	19
BL2014-841	Included	19
BL2014-842	Omitted	19
BL2014-843	Omitted	19
BL2014-844	Omitted	19
BL2014-845	Omitted	19
BL2014-846	Included	19
BL2014-847	Included	19
BL2014-848	Omitted	19

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2014-849	Omitted	19
BL2014-850	Omitted	19
BL2014-851	Omitted	19
BL2014-852	Omitted	19
BL2014-853	Omitted	19
BL2014-854	Omitted	19
BL2014-855	Omitted	19
BL2014-856	Omitted	19
BL2014-857	Omitted	19
BL2014-858	Omitted	19
BL2014-859	Omitted	19
BL2014-860	Omitted	19
BL2014-861	Omitted	19
BL2014-862	Omitted	19
BL2014-863	Omitted	19
BL2014-864	Omitted	19
BL2014-865	Omitted	19
BL2014-866	Omitted	19
BL2014-867	Omitted	19
BL2014-868	Omitted	19
BL2014-869	Omitted	19
BL2014-870	Omitted	19
Supp. No. 20		
BL2014-871	Included	20
BL2014-872	Omitted	20
BL2014-873	Omitted	20
BL2014-874	Omitted	20
BL2014-875	Omitted	20
BL2014-876	Omitted	20
BL2014-877	Omitted	20
BL2014-878	Omitted	20
BL2014-879	Omitted	20
BL2014-880	Omitted	20
BL2014-881	Omitted	20
BL2014-882	Omitted	20
BL2014-883	Omitted	20
BL2014-884	Omitted	20
BL2014-885	Omitted	20
BL2014-886	Omitted	20
BL2014-887	Omitted	20
BL2014-888	Omitted	20
BL2014-889	Omitted	20
BL2014-890	Omitted	20
BL2014-891	Omitted	20
BL2014-892	Omitted	20
BL2014-893	Omitted	20
BL2014-894	Omitted	20
BL2014-895	Omitted	20
BL2014-896	Omitted	20

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2014-897	Omitted	20
BL2014-898	Omitted	20
BL2014-899	Omitted	20
BL2014-900	Omitted	20
BL2014-901	Omitted	20
BL2014-902	Omitted	20
BL2014-903	Omitted	20
BL2014-904	Omitted	20
BL2014-905	Omitted	20
BL2014-906	Omitted	20
BL2014-907	Omitted	20
BL2014-908	Included	20
BL2014-909	Included	20
BL2014-910	Included	20
BL2014-911	Omitted	20
BL2014-912	Omitted	20
BL2014-913	Omitted	20
BL2014-914	Omitted	20
BL2014-915	Omitted	20
BL2014-916	Omitted	20
BL2014-917	Omitted	20
BL2014-918	Omitted	20
BL2014-919	Omitted	20
BL2014-920	Omitted	20
BL2014-921	Omitted	20
BL2014-922	Included	20
BL2014-923	Omitted	20
BL2014-924	Omitted	20
BL2014-925	Included	20
BL2014-926	Omitted	20
BL2014-927	Omitted	20
BL2014-928	Omitted	20
BL2014-929	Omitted	20
BL2014-930	Omitted	20
BL2014-931	Omitted	20
BL2014-932	Omitted	20
BL2014-933	Omitted	20
BL2014-934	Omitted	20
BL2014-935	Omitted	20
BL2014-936	Omitted	20
BL2014-937	Omitted	20
BL2014-938	Omitted	20
BL2014-939	Omitted	20
BL2014-940	Omitted	20
BL2014-941	Omitted	20
BL2014-942	Omitted	20
BL2014-943	Omitted	20
BL2014-944	Omitted	20
BL2014-945	Omitted	20

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2014-946	Omitted	20
BL2014-947	Included	20
BL2014-948	Omitted	20
BL2014-949	Omitted	20
BL2014-950	Omitted	20
BL2014-951	Included	20
BL2014-952	Included	20
BL2014-953	Omitted	20
BL2014-954	Omitted	20
BL2014-955	Omitted	20
BL2014-956	Omitted	20
BL2014-957	Omitted	20
BL2014-958	Omitted	20
BL2014-959	Omitted	20
BL2014-960	Omitted	20
BL2014-961	Omitted	20
BL2014-962	Omitted	20
BL2014-963	Omitted	20
BL2014-964	Omitted	20
BL2014-965	Omitted	20
BL2014-966	Omitted	20
BL2014-967	Omitted	20
BL2014-968	Omitted	20
BL2014-969	Omitted	20
BL2014-970	Omitted	20
BL2014-971	Omitted	20
BL2014-972	Omitted	20
BL2014-973	Omitted	20
BL2014-974	Omitted	20
BL2014-975	Omitted	20
BL2014-976	Omitted	20
BL2014-977	Omitted	20
BL2014-978	Omitted	20
BL2014-979	Omitted	20
BL2014-980	Omitted	20
BL2014-981	Omitted	20
BL2014-982	Omitted	20
BL2014-983	Omitted	20
BL2014-984	Omitted	20
BL2014-985	Omitted	20
BL2014-986	Omitted	20
BL2014-987	Omitted	20
BL2014-988	Omitted	20
BL2014-989	Omitted	20
BL2014-990	Included	20
BL2014-991	Included	20
BL2014-992	Omitted	20
BL2014-993	Included	20
BL2014-994	Omitted	20

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2014-995	Included	20
BL2014-996	Included	20
BL2014-997	Omitted	20
BL2015-998	Omitted	20
BL2015-999	Omitted	20
BL2015-1000	Omitted	20
BL2015-1001	Omitted	20
BL2015-1002	Omitted	20
BL2015-1003	Omitted	20
BL2015-1004	Omitted	20
BL2015-1005	Omitted	20
BL2015-1006	Omitted	20
BL2015-1007	Included	20
BL2015-1008	Included	20
BL2015-1009	Omitted	20
BL2015-1010	Omitted	20
BL2015-1011	Omitted	20
BL2015-1012	Omitted	20
BL2015-1013	Omitted	20
BL2015-1014	Omitted	20
BL2015-1015	Included	20
BL2015-1016	Omitted	20
BL2015-1017	Omitted	20
BL2015-1018	Omitted	20
BL2015-1019	Omitted	20
BL2015-1020	Omitted	20
BL2015-1021	Omitted	20
BL2015-1022	Omitted	20
Supp. No. 21		
BL2015-1016	Included	21
BL2015-1023	Omitted	21
BL2015-1024	Omitted	21
BL2015-1025	Omitted	21
BL2015-1026	Omitted	21
BL2015-1027	Omitted	21
BL2015-1028	Omitted	21
BL2015-1029	Omitted	21
BL2015-1030	Omitted	21
BL2015-1031	Omitted	21
BL2015-1032	Omitted	21
BL2015-1033	Omitted	21
BL2015-1034	Omitted	21
BL2015-1035	Omitted	21
BL2015-1036	Included	21
BL2015-1037	Omitted	21
BL2015-1038	Included	21
BL2015-1039	Omitted	21
BL2015-1040	Omitted	21
BL2015-1041	Omitted	21

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2015-1042	Omitted	21
BL2015-1043	Omitted	21
BL2015-1044	Omitted	21
BL2015-1045	Omitted	21
BL2015-1046	Omitted	21
BL2015-1047	Omitted	21
BL2015-1048	Included	21
BL2015-1049	Omitted	21
BL2015-1050	Omitted	21
BL2015-1051	Omitted	21
BL2015-1052	Omitted	21
BL2015-1053	Omitted	21
BL2015-1054	Omitted	21
BL2015-1055	Omitted	21
BL2015-1056	Included	21
BL2015-1057	Included	21
BL2015-1058	Omitted	21
BL2015-1059	Omitted	21
BL2015-1060	Omitted	21
BL2015-1061	Omitted	21
BL2015-1062	Omitted	21
BL2015-1063	Included	21
BL2015-1064	Omitted	21
BL2015-1065	Included	21
BL2015-1066	Omitted	21
BL2015-1067	Omitted	21
BL2015-1068	Omitted	21
BL2015-1069	Omitted	21
BL2015-1070	Omitted	21
BL2015-1071	Omitted	21
BL2015-1072	Omitted	21
BL2015-1073	Omitted	21
BL2015-1074	Omitted	21
BL2015-1075	Omitted	21
BL2015-1076	Omitted	21
BL2015-1077	Omitted	21
BL2015-1078	Omitted	21
BL2015-1079	Omitted	21
BL2015-1080	Omitted	21
BL2015-1081	Omitted	21
BL2015-1082	Omitted	21
BL2015-1083	Omitted	21
BL2015-1084	Omitted	21
BL2015-1085	Omitted	21
BL2015-1086	Omitted	21
BL2015-1087	Omitted	21
BL2015-1088	Omitted	21
BL2015-1089	Omitted	21
BL2015-1090	Omitted	21

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2015-1091	Omitted	21
BL2015-1092	Omitted	21
BL2015-1093	Omitted	21
BL2015-1094	Omitted	21
BL2015-1095	Omitted	21
BL2015-1096	Omitted	21
BL2015-1097	Omitted	21
BL2015-1098	Omitted	21
BL2015-1099	Included	21
BL2015-1100	Included	21
BL2015-1101	Omitted	21
BL2015-1102	Included	21
BL2015-1103	Omitted	21
BL2015-1104	Omitted	21
BL2015-1105	Omitted	21
BL2015-1106	Omitted	21
BL2015-1107	Omitted	21
BL2015-1108	Omitted	21
BL2015-1109	Omitted	21
BL2015-1110	Omitted	21
BL2015-1111	Omitted	21
BL2015-1112	Omitted	21
BL2015-1113	Omitted	21
BL2015-1114	Omitted	21
BL2015-1115	Omitted	21
BL2015-1116	Omitted	21
BL2015-1117	Omitted	21
BL2015-1118	Omitted	21
BL2015-1119	Omitted	21
BL2015-1120	Omitted	21
BL2015-1121	Omitted	21
BL2015-1122	Omitted	21
BL2015-1123	Omitted	21
BL2015-1124	Omitted	21
BL2015-1125	Omitted	21
BL2015-1126	Included	21
BL2015-1127	Omitted	21
BL2015-1128	Omitted	21
BL2015-1129	Omitted	21
BL2015-1130	Omitted	21
BL2015-1131	Omitted	21
BL2015-1132	Omitted	21
BL2015-1133	Omitted	21
BL2015-1134	Omitted	21
BL2015-1135	Omitted	21
BL2015-1136	Omitted	21
BL2015-1137	Omitted	21
BL2015-1138	Omitted	21
BL2015-1139	Omitted	21

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2015-1140	Omitted	21
BL2015-1141	Omitted	21
BL2015-1142	Omitted	21
BL2015-1143	Omitted	21
BL2015-1144	Omitted	21
BL2015-1145	Omitted	21
BL2015-1146	Included	21
BL2015-1147	Omitted	21
BL2015-1148	Omitted	21
BL2015-1149	Omitted	21
BL2015-1150	Omitted	21
BL2015-1151	Omitted	21
Supp. No. 22		
BL2011-4	Omitted	22
BL2011-21	Omitted	22
BL2011-25	Omitted	22
BL2011-26	Omitted	22
BL2011-28	Omitted	22
BL2011-32	Omitted	22
BL2011-48	Omitted	22
BL2011-49	Omitted	22
BL2012-104	Omitted	22
BL2012-107	Omitted	22
BL2012-109	Omitted	22
BL2012-113	Omitted	22
BL2012-121	Omitted	22
BL2012-153	Omitted	22
BL2012-161	Omitted	22
BL2012-162	Omitted	22
BL2012-175	Omitted	22
BL2012-179	Omitted	22
BL2012-203	Omitted	22
BL2012-205	Omitted	22
BL2012-206	Omitted	22
BL2012-241	Omitted	22
BL2012-245	Omitted	22
BL2012-246	Omitted	22
BL2012-278	Omitted	22
BL2012-284	Omitted	22
BL2012-292	Omitted	22
BL2012-293	Omitted	22
BL2013-341	Omitted	22
BL2013-349	Omitted	22
BL2013-353	Omitted	22
BL2013-354	Omitted	22
BL2013-392	Omitted	22
BL2013-402	Omitted	22
BL2013-422	Omitted	22
BL2013-451	Omitted	22

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2013-486	Omitted	22
BL2013-523	Omitted	22
BL2013-569	Omitted	22
BL2013-580	Omitted	22
BL2013-603	Omitted	22
BL2014-652	Omitted	22
BL2014-653	Omitted	22
BL2014-741	Omitted	22
BL2014-776	Omitted	22
BL2014-799	Omitted	22
BL2014-807	Omitted	22
BL2014-838	Omitted	22
BL2014-857	Omitted	22
BL2014-878	Omitted	22
BL2014-937	Omitted	22
BL2014-949	Omitted	22
BL2014-950	Omitted	22
BL2014-992	Omitted	22
BL2015-1010	Omitted	22
BL2015-1017	Omitted	22
BL2015-1053	Included	22
BL2015-1055	Omitted	22
BL2015-1066	Omitted	22
BL2015-1083	Omitted	22
BL2015-1098	Included	22
BL2015-1114	Omitted	22
BL2015-1120	Omitted	22
BL2015-1121	Included	22
BL2015-1129	Included	22
BL2015-1139	Included	22
BL2015-1140	Included	22
BL2015-1144	Omitted	22
BL2015-1145	Included	22
BL2015-1147	Omitted	22
BL2015-1148	Omitted	22
BL2015-1152	Included	22
BL2015-1153	Included	22
BL2015-1154	Omitted	22
BL2015-1155	Omitted	22
BL2015-1156	Omitted	22
BL2015-1157	Omitted	22
BL2015-1158	Omitted	22
BL2015-1159	Omitted	22
BL2015-1160	Omitted	22
BL2015-1161	Omitted	22
BL2015-1162	Omitted	22
BL2015-1163	Omitted	22
BL2015-1164	Omitted	22
BL2015-1165	Omitted	22

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2015-1166	Omitted	22
BL2015-1167	Omitted	22
BL2015-1168	Omitted	22
BL2015-1169	Omitted	22
BL2015-1170	Omitted	22
BL2015-1171	Omitted	22
BL2015-1172	Omitted	22
BL2015-1173	Omitted	22
BL2015-1174	Omitted	22
BL2015-1175	Omitted	22
BL2015-1176	Omitted	22
BL2015-1177	Omitted	22
BL2015-1178	Omitted	22
BL2015-1179	Omitted	22
BL2015-1180	Omitted	22
BL2015-1181	Omitted	22
BL2015-1182	Omitted	22
BL2015-1183	Omitted	22
BL2015-1184	Omitted	22
BL2015-1185	Omitted	22
BL2015-1186	Omitted	22
BL2015-1187	Omitted	22
BL2015-1188	Omitted	22
BL2015-1189	Omitted	22
BL2015-1190	Omitted	22
BL2015-1191	Omitted	22
BL2015-1192	Omitted	22
BL2015-1193	Omitted	22
BL2015-1194	Omitted	22
BL2015-1195	Omitted	22
BL2015-1196	Omitted	22
BL2015-1197	Omitted	22
BL2015-1198	Omitted	22
BL2015-1199	Omitted	22
BL2015-1200	Omitted	22
BL2015-1201	Omitted	22
BL2015-1202	Omitted	22
BL2015-1203	Omitted	22
BL2015-1204	Omitted	22
BL2015-1205	Omitted	22
BL2015-1206	Omitted	22
BL2015-1207	Omitted	22
BL2015-1208	Omitted	22
BL2015-1209	Omitted	22
BL2015-1210	Included	22
BL2015-1211	Omitted	22
BL2015-1212	Omitted	22
BL2015-1213	Included	22
BL2015-1214	Included	22

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2015-1215	Omitted	22
BL2015-1216	Omitted	22
BL2015-1217	Omitted	22
BL2015-1218	Omitted	22
BL2015-1219	Omitted	22
BL2015-1220	Omitted	22
BL2015-1221	Omitted	22
BL2015-1222	Omitted	22
BL2015-1223	Omitted	22
BL2015-1224	Omitted	22
BL2015-1225	Omitted	22
BL2015-1226	Omitted	22
BL2015-1227	Omitted	22
BL2015-1228	Omitted	22
BL2015-1229	Omitted	22
BL2015-1230	Omitted	22
BL2015-1231	Omitted	22
BL2015-1232	Omitted	22
BL2015-1233	Omitted	22
BL2015-1234	Omitted	22
BL2015-1235	Omitted	22
BL2015-1236	Omitted	22
BL2015-1237	Omitted	22
BL2015-1238	Omitted	22
BL2015-1239	Omitted	22
BL2015-1240	Omitted	22
BL2015-1241	Omitted	22
BL2015-1242	Omitted	22
BL2015-1243	Omitted	22
BL2015-1244	Omitted	22
BL2015-1245	Omitted	22
BL2015-1246	Omitted	22
BL2015-1247	Omitted	22
BL2015-1248	Omitted	22
BL2015-1249	Omitted	22
BL2015-1250	Omitted	22
BL2015-1251	Omitted	22
BL2015-1252	Omitted	22
BL2015-1253	Included	22
BL2015-1254	Omitted	22
BL2015-1255	Omitted	22
BL2015-1256	Omitted	22
BL2015-1257	Omitted	22
BL2015-1258	Omitted	22
BL2015-1259	Omitted	22
BL2015-1260	Omitted	22
BL2015-1261	Omitted	22
BL2015-1262	Omitted	22
BL2015-1263	Omitted	22

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2015-1264	Omitted	22
BL2015-1265	Omitted	22
BL2015-1266	Omitted	22
BL2015-1267	Omitted	22
BL2015-1268	Omitted	22
BL2015-1269	Omitted	22
BL2015-1270	Omitted	22
BL2015-1271	Omitted	22
BL2015-1272	Omitted	22
BL2015-1273	Omitted	22
BL2015-1274	Omitted	22
BL2015-1275	Omitted	22
BL2015-1276	Included	22
BL2015-1277	Included	22
BL2015-1278	Included	22
BL2015-1279	Omitted	22
BL2015-1280	Included	22
BL2015-1281	Omitted	22
BL2015-1282	Omitted	22
BL2015-1283	Omitted	22
BL2015-1284	Omitted	22
BL2015-1285	Omitted	22
BL2015-1286	Omitted	22
BL2015-1287	Omitted	22
BL2015-1288	Omitted	22
BL2015-1289	Omitted	22
BL2015-1290	Omitted	22
BL2015-1291	Omitted	22
BL2015-1292	Omitted	22
BL2015-1293	Omitted	22
BL2015-1294	Omitted	22
BL2015-1295	Omitted	22
BL2015-1296	Omitted	22
BL2015-1297	Omitted	22
BL2015-1298	Omitted	22
BL2015-1299	Omitted	22
BL2015-1300	Omitted	22
BL2015-1301	Omitted	22
BL2015-1302	Omitted	22
BL2015-1303	Omitted	22
Charter (Amdt. 3 of 8-6-2015)	Included	22
BL2015-1304	Omitted	22
BL2015-1305	Omitted	22
BL2015-1306	Omitted	22
BL2015-1307	Omitted	22
BL2015-1308	Omitted	22
BL2015-1309	Omitted	22
BL2015-1310	Omitted	22
BL2015-1311	Omitted	22

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2015-1312	Omitted	22
BL2015-1313	Omitted	22
BL2015-1	Omitted	22
BL2015-2	Omitted	22
BL2015-3	Omitted	22
BL2015-4	Omitted	22
BL2015-5	Omitted	22
BL2015-6	Omitted	22
BL2015-7	Omitted	22
BL2015-8	Omitted	22
BL2015-9	Omitted	22
BL2015-10	Omitted	22
BL2015-11	Omitted	22
BL2015-12	Omitted	22
BL2015-13	Included	22
BL2015-14	Included	22
BL2015-15	Omitted	22
BL2015-16	Omitted	22
BL2015-17	Omitted	22
BL2015-18	Omitted	22
BL2015-19	Omitted	22
BL2015-20	Omitted	22
BL2015-21	Omitted	22
BL2015-22	Omitted	22
BL2015-23	Omitted	22
BL2015-24	Omitted	22
BL2015-25	Omitted	22
BL2015-26	Omitted	22
BL2015-27	Omitted	22
BL2015-28	Omitted	22
BL2015-29	Omitted	22
BL2015-30	Omitted	22
BL2015-31	Omitted	22
BL2015-32	Omitted	22
BL2015-33	Omitted	22
BL2015-34	Omitted	22
BL2015-35	Omitted	22
BL2015-36	Omitted	22
BL2015-37	Omitted	22
BL2015-38	Omitted	22
BL2015-39	Omitted	22
BL2015-40	Omitted	22
BL2015-41	Omitted	22
BL2015-42	Omitted	22
BL2015-43	Omitted	22
BL2015-44	Omitted	22
BL2015-45	Included	22
BL2015-46	Included	22
BL2015-47	Omitted	22

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2015-48	Omitted	22
BL2015-49	Omitted	22
BL2015-50	Omitted	22
BL2015-51	Omitted	22
BL2015-52	Omitted	22
BL2015-53	Omitted	22
BL2015-54	Omitted	22
BL2015-55	Omitted	22
BL2015-56	Omitted	22
BL2015-57	Omitted	22
BL2015-58	Omitted	22
BL2015-59	Omitted	22
BL2015-60	Omitted	22
BL2015-61	Omitted	22
BL2015-62	Omitted	22
BL2015-63	Omitted	22
BL2015-64	Omitted	22
BL2015-65	Omitted	22
BL2015-66	Omitted	22
BL2015-67	Included	22
BL2015-68	Included	22
BL2015-69	Omitted	22
BL2015-70	Omitted	22
Supp. No. 23		
BL2015-71	Omitted	23
BL2015-72	Omitted	23
BL2015-73	Omitted	23
BL2015-74	Omitted	23
BL2015-75	Omitted	23
BL2015-76	Omitted	23
BL2015-77	Omitted	23
BL2015-78	Omitted	23
BL2015-79	Omitted	23
BL2015-80	Omitted	23
BL2015-81	Omitted	23
BL2015-82	Omitted	23
BL2015-83	Omitted	23
BL2015-84	Omitted	23
BL2015-85	Omitted	23
BL2015-86	Omitted	23
BL2015-87	Omitted	23
BL2015-88	Omitted	23
BL2015-89	Omitted	23
BL2015-90	Omitted	23
BL2015-91	Omitted	23
BL2015-92	Omitted	23
BL2015-93	Omitted	23
BL2015-94	Included	23
BL2015-95	Included	23

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2015-96	Omitted	23
BL2015-97	Omitted	23
BL2015-98	Omitted	23
BL2016-99	Included	23
BL2016-100	Omitted	23
BL2016-101	Omitted	23
BL2016-102	Omitted	23
BL2016-103	Omitted	23
BL2016-104	Omitted	23
BL2016-105	Omitted	23
BL2016-106	Omitted	23
BL2016-107	Omitted	23
BL2016-108	Omitted	23
BL2016-109	Omitted	23
BL2016-110	Omitted	23
BL2016-111	Omitted	23
BL2016-112	Omitted	23
BL2016-113	Omitted	23
BL2016-114	Omitted	23
BL2016-115	Omitted	23
BL2016-116	Omitted	23
BL2016-117	Included	23
BL2016-118	Omitted	23
BL2016-119	Omitted	23
BL2016-120	Omitted	23
BL2016-121	Omitted	23
BL2016-122	Omitted	23
BL2016-123	Omitted	23
BL2016-124	Included	23
BL2016-125	Included	23
BL2016-126	Omitted	23
BL2016-127	Omitted	23
BL2016-128	Omitted	23
BL2016-129	Omitted	23
BL2016-130	Omitted	23
BL2016-131	Omitted	23
BL2016-132	Included	23
BL2016-133	Omitted	23
BL2016-134	Omitted	23
BL2016-135	Omitted	23
BL2016-136	Omitted	23
BL2016-137	Omitted	23
BL2016-138	Omitted	23
BL2016-139	Omitted	23
BL2016-140	Omitted	23
BL2016-141	Omitted	23
BL2016-142	Omitted	23
BL2016-143	Omitted	23
BL2016-144	Omitted	23

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2016-145	Omitted	23
BL2016-146	Omitted	23
BL2016-147	Included	23
BL2016-148	Included	23
BL2016-149	Omitted	23
BL2016-150	Omitted	23
BL2016-151	Omitted	23
BL2016-152	Omitted	23
BL2016-153	Omitted	23
BL2016-154	Omitted	23
BL2016-155	Omitted	23
BL2016-156	Omitted	23
BL2016-157	Included	23
BL2016-158	Omitted	23
BL2016-159	Omitted	23
BL2016-160	Included	23
BL2016-161	Omitted	23
BL2016-162	Omitted	23
BL2016-163	Omitted	23
BL2016-164	Omitted	23
BL2016-165	Omitted	23
BL2016-166	Omitted	23
BL2016-167	Omitted	23
BL2016-168	Omitted	23
BL2016-169	Omitted	23
BL2016-170	Omitted	23
BL2016-171	Omitted	23
BL2016-172	Omitted	23
BL2016-173	Omitted	23
BL2016-174	Omitted	23
BL2016-175	Omitted	23
BL2016-176	Included	23
Supp. No. 24		
BL2016-177	Included	24
BL2016-178	Included	24
BL2016-179	Omitted	24
BL2016-180	Omitted	24
BL2016-181	Omitted	24
BL2016-182	Omitted	24
BL2016-183	Omitted	24
BL2016-184	Omitted	24
BL2016-185	Omitted	24
BL2016-186	Omitted	24
BL2016-187	Omitted	24
BL2016-188	Omitted	24
BL2016-189	Omitted	24
BL2016-190	Omitted	24
BL2016-191	Omitted	24
BL2016-192	Omitted	24

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2016-193	Omitted	24
BL2016-194	Omitted	24
BL2016-195	Omitted	24
BL2016-196	Omitted	24
BL2016-197	Omitted	24
BL2016-198	Omitted	24
BL2016-199	Omitted	24
BL2016-200	Omitted	24
BL2016-201	Omitted	24
BL2016-202	Omitted	24
BL2016-203	Omitted	24
BL2016-204	Omitted	24
BL2016-205	Included	24
BL2016-206	Included	24
BL2016-207	Included	24
BL2016-208	Omitted	24
BL2016-209	Omitted	24
BL2016-210	Omitted	24
BL2016-211	Omitted	24
BL2016-212	Omitted	24
BL2016-213	Omitted	24
BL2016-214	Omitted	24
BL2016-215	Omitted	24
BL2016-216	Omitted	24
BL2016-217	Omitted	24
BL2016-218	Included	24
BL2016-219	Omitted	24
BL2016-220	Included	24
BL2016-221	Included	24
BL2016-222	Included	24
BL2016-223	Included	24
BL2016-224	Omitted	24
BL2016-225	Omitted	24
BL2016-226	Omitted	24
BL2016-227	Omitted	24
BL2016-228	Omitted	24
BL2016-229	Omitted	24
BL2016-230	Omitted	24
BL2016-231	Omitted	24
BL2016-232	Omitted	24
BL2016-233	Omitted	24
BL2016-234	Included	24
BL2016-235	Included	24
BL2016-236	Included	24
BL2016-237	Included	24
BL2016-238	Included	24
BL2016-239	Omitted	24
BL2016-240	Included	24
BL2016-241	Omitted	24

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2016-242	Omitted	24
BL2016-243	Omitted	24
BL2016-244	Omitted	24
BL2016-245	Omitted	24
BL2016-246	Omitted	24
BL2016-247	Omitted	24
BL2016-248	Omitted	24
BL2016-249	Omitted	24
BL2016-250	Omitted	24
BL2016-251	Omitted	24
BL2016-252	Omitted	24
BL2016-253	Omitted	24
BL2016-254	Omitted	24
BL2016-255	Omitted	24
BL2016-256	Omitted	24
BL2016-257	Omitted	24
BL2016-258	Omitted	24
BL2016-259	Omitted	24
BL2016-260	Included	24
BL2016-261	Omitted	24
BL2016-262	Omitted	24
BL2016-263	Omitted	24
BL2016-264	Omitted	24
Supp. No. 25		
BL2016-133	Included	25
BL2016-250	Omitted	25
BL2016-256	Omitted	25
BL2016-257	Included	25
BL2016-265	Omitted	25
BL2016-266	Included	25
BL2016-267	Included	25
BL2016-268	Omitted	25
BL2016-269	Omitted	25
BL2016-270	Omitted	25
BL2016-271	Omitted	25
BL2016-272	Omitted	25
BL2016-273	Omitted	25
BL2016-274	Omitted	25
BL2016-275	Omitted	25
BL2016-276	Omitted	25
BL2016-277	Omitted	25
BL2016-278	Omitted	25
BL2016-279	Omitted	25
BL2016-280	Omitted	25
BL2016-281	Omitted	25
BL2016-282	Omitted	25
BL2016-283	Omitted	25
BL2016-284	Omitted	25
BL2016-285	Omitted	25

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2016-286	Omitted	25
BL2016-287	Omitted	25
BL2016-288	Omitted	25
BL2016-289	Omitted	25
BL2016-290	Omitted	25
BL2016-291	Omitted	25
BL2016-292	Omitted	25
BL2016-293	Omitted	25
BL2016-294	Omitted	25
BL2016-295	Omitted	25
BL2016-296	Omitted	25
BL2016-297	Omitted	25
BL2016-298	Omitted	25
BL2016-299	Omitted	25
BL2016-300	Omitted	25
BL2016-301	Omitted	25
BL2016-302	Omitted	25
BL2016-303	Omitted	25
BL2016-304	Omitted	25
BL2016-305	Omitted	25
BL2016-306	Omitted	25
BL2016-307	Omitted	25
BL2016-308	Omitted	25
BL2016-309	Included	25
BL2016-310	Included	25
BL2016-311	Included	25
BL2016-312	Omitted	25
BL2016-313	Omitted	25
BL2016-314	Omitted	25
BL2016-315	Omitted	25
BL2016-316	Omitted	25
BL2016-317	Omitted	25
BL2016-318	Omitted	25
BL2016-319	Omitted	25
BL2016-320	Omitted	25
BL2016-321	Omitted	25
BL2016-322	Omitted	25
BL2016-323	Omitted	25
BL2016-324	Omitted	25
BL2016-325	Omitted	25
BL2016-326	Omitted	25
BL2016-327	Included	25
BL2016-328	Included	25
BL2016-329	Included	25
BL2016-330	Included	25
BL2016-331	Included	25
BL2016-332	Omitted	25
BL2016-333	Omitted	25
BL2016-334	Omitted	25

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2016-335	Omitted	25
BL2016-336	Omitted	25
BL2016-337	Omitted	25
BL2016-338	Omitted	25
BL2016-339	Omitted	25
BL2016-340	Omitted	25
BL2016-341	Omitted	25
BL2016-342	Included	25
BL2016-343	Included	25
BL2016-344	Omitted	25
BL2016-345	Omitted	25
BL2016-346	Omitted	25
BL2016-347	Omitted	25
BL2016-348	Omitted	25
BL2016-349	Included	25
BL2016-350	Omitted	25
BL2016-351	Omitted	25
BL2016-352	Omitted	25
BL2016-353	Omitted	25
BL2016-354	Omitted	25
BL2016-355	Omitted	25
BL2016-356	Omitted	25
BL2016-357	Omitted	25
BL2016-358	Omitted	25
BL2016-359	Omitted	25
BL2016-360	Omitted	25
BL2016-361	Omitted	25
BL2016-362	Omitted	25
BL2016-363	Omitted	25
BL2016-364	Omitted	25
BL2016-365	Omitted	25
BL2016-366	Omitted	25
BL2016-367	Omitted	25
BL2016-368	Omitted	25
BL2016-369	Omitted	25
BL2016-370	Omitted	25
BL2016-371	Omitted	25
BL2016-372	Omitted	25
BL2016-373	Included	25
BL2016-374	Included	25
BL2016-375	Omitted	25
BL2016-376	Omitted	25
BL2016-377	Omitted	25
BL2016-378	Included	25
BL2016-379	Included	25
BL2016-380	Omitted	25
BL2016-381	Included	25
BL2016-382	Omitted	25
BL2016-383	Included	25

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2016-384	Included	25
BL2016-385	Omitted	25
BL2016-386	Omitted	25
BL2016-387	Omitted	25
BL2016-388	Omitted	25
BL2016-389	Omitted	25
BL2016-390	Omitted	25
BL2016-391	Omitted	25
RS2016-391	Included	25
BL2016-392	Omitted	25
BL2016-393	Omitted	25
BL2016-394	Omitted	25
BL2016-395	Omitted	25
BL2016-396	Omitted	25
BL2016-397	Omitted	25
BL2016-398	Omitted	25
BL2016-399	Omitted	25
BL2016-400	Omitted	25
BL2016-401	Omitted	25
BL2016-402	Omitted	25
BL2016-403	Omitted	25
BL2016-404	Omitted	25
BL2016-405	Omitted	25
BL2016-406	Omitted	25
BL2016-407	Omitted	25
BL2016-408	Omitted	25
BL2016-409	Omitted	25
BL2016-410	Omitted	25
BL2016-411	Omitted	25
BL2016-412	Omitted	25
BL2016-413	Omitted	25
BL2016-414	Omitted	25
BL2016-415	Included	25
BL2016-416	Included	25
BL2016-417	Included	25
BL2016-418	Omitted	25
BL2016-419	Omitted	25
BL2016-420	Omitted	25
BL2016-421	Omitted	25
BL2016-422	Omitted	25
BL2016-423	Omitted	25
BL2016-424	Omitted	25
BL2016-425	Omitted	25
BL2016-426	Omitted	25
BL2016-427	Omitted	25
BL2016-428	Omitted	25
BL2016-429	Omitted	25
BL2016-430	Omitted	25
BL2016-431	Omitted	25

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2016-432	Omitted	25
BL2016-433	Omitted	25
BL2016-434	Included	25
BL2016-435	Omitted	25
BL2016-436	Omitted	25
BL2016-437	Omitted	25
BL2016-438	Omitted	25
BL2016-439	Omitted	25
BL2016-440	Omitted	25
BL2016-441	Omitted	25
BL2016-442	Omitted	25
BL2016-443	Omitted	25
BL2016-444	Omitted	25
BL2016-445	Omitted	25
BL2016-446	Omitted	25
BL2016-447	Omitted	25
BL2016-448	Omitted	25
BL2016-449	Omitted	25
BL2016-450	Omitted	25
BL2016-451	Omitted	25
BL2016-452	Omitted	25
BL2016-453	Omitted	25
BL2016-454	Included	25
BL2016-455	Omitted	25
BL2016-456	Omitted	25
BL2016-457	Omitted	25
BL2016-458	Omitted	25
BL2016-459	Omitted	25
BL2016-460	Omitted	25
BL2016-461	Omitted	25
BL2016-462	Included	25
BL2016-463	Included	25
BL2016-464	Omitted	25
BL2016-465	Omitted	25
BL2016-466	Omitted	25
BL2016-467	Omitted	25
BL2016-468	Omitted	25
BL2016-469	Omitted	25
BL2016-470	Omitted	25
BL2016-471	Omitted	25
BL2016-472	Omitted	25
BL2016-473	Omitted	25
BL2016-474	Omitted	25
BL2016-475	Omitted	25
BL2016-476	Omitted	25
BL2016-477	Omitted	25
BL2016-478	Omitted	25
BL2016-479	Omitted	25
BL2016-480	Omitted	25

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2016-481	Omitted	25
BL2016-482	Omitted	25
BL2016-483	Omitted	25
BL2016-484	Omitted	25
BL2016-485	Omitted	25
BL2016-486	Omitted	25
BL2016-487	Omitted	25
BL2016-488	Omitted	25
BL2016-489	Omitted	25
BL2016-490	Omitted	25
BL2016-491	Omitted	25
BL2016-492	Included	25
BL2016-493	Omitted	25
BL2016-494	Omitted	25
BL2016-495	Omitted	25
BL2016-496	Included	25
BL2016-497	Included	25
BL2016-498	Omitted	25
BL2016-499	Omitted	25
BL2016-500	Omitted	25
BL2016-501	Omitted	25
BL2016-502	Omitted	25
BL2016-503	Omitted	25
BL2016-504	Omitted	25
BL2016-505	Omitted	25
BL2016-506	Omitted	25
BL2016-507	Omitted	25
BL2016-508	Omitted	25
BL2016-509	Omitted	25
BL2016-510	Omitted	25
BL2016-511	Omitted	25
BL2016-512	Omitted	25
BL2016-513	Omitted	25
BL2016-514	Omitted	25
BL2016-515	Omitted	25
BL2016-516	Omitted	25
BL2016-517	Omitted	25
BL2016-518	Omitted	25
BL2016-519	Omitted	25
BL2016-520	Omitted	25
BL2016-521	Omitted	25
BL2016-522	Omitted	25
BL2016-523	Omitted	25
BL2016-524	Included	25
BL2016-525	Omitted	25
BL2016-526	Included	25
BL2016-527	Omitted	25
BL2016-528	Included	25
BL2016-529	Omitted	25

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2016-530	Omitted	25
BL2016-531	Omitted	25
BL2016-532	Omitted	25
BL2016-533	Omitted	25
BL2016-534	Omitted	25
BL2016-535	Omitted	25
BL2016-536	Omitted	25
BL2016-537	Omitted	25
BL2016-538	Omitted	25
BL2016-539	Omitted	25
BL2016-540	Omitted	25
BL2017-541	Included	25
BL2017-542	Included	25
BL2017-543	Omitted	25
BL2017-544	Omitted	25
BL2017-545	Omitted	25
BL2017-546	Omitted	25
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BL2017-559	Omitted	25
BL2017-560	Included	25
BL2017-561	Included	25
BL2017-562	Omitted	25
BL2017-563	Omitted	25
BL2017-564	Omitted	25
BL2017-565	Omitted	25
BL2017-566	Omitted	25
BL2017-567	Omitted	25
BL2017-568	Omitted	25
BL2017-569	Omitted	25
BL2017-570	Omitted	25
BL2017-571	Omitted	25
BL2017-572	Omitted	25
BL2017-573	Omitted	25
BL2017-574	Omitted	25
Supp. No. 26		
BL2016-360	Omitted	26
BL2016-408	Omitted	26
BL2016-433	Omitted	26

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2016-473	Omitted	26
BL2016-483	Included	26
BL2016-484	Omitted	26
BL2016-488	Omitted	26
BL2016-489	Omitted	26
BL2016-493	Included	26
BL2016-513	Included	26
BL2016-519	Omitted	26
BL2016-537	Omitted	26
BL2017-547	Omitted	26
BL2017-548	Omitted	26
BL2017-552	Omitted	26
BL2017-555	Omitted	26
BL2017-556	Omitted	26
BL2017-557	Omitted	26
BL2017-559	Omitted	26
BL2017-575	Omitted	26
BL2017-576	Omitted	26
BL2017-577	Omitted	26
BL2017-578	Omitted	26
BL2017-579	Omitted	26
BL2017-580	Included	26
BL2017-581	Included	26
BL2017-582	Included	26
BL2017-583	Included	26
BL2017-584	Included	26
BL2017-585	Included	26
BL2017-586	Included	26
BL2017-587	Omitted	26
BL2017-588	Included	26
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BL2017-596	Omitted	26
BL2017-597	Omitted	26
BL2017-598	Omitted	26
BL2017-599	Omitted	26
BL2017-600	Omitted	26
BL2017-601	Omitted	26
BL2017-602	Omitted	26
BL2017-603	Omitted	26
BL2017-604	Omitted	26
BL2017-605	Omitted	26
BL2017-606	Omitted	26
BL2017-607	Omitted	26

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2017-608	Omitted	26
BL2017-609	Omitted	26
BL2017-610	Omitted	26
BL2017-611	Omitted	26
BL2017-612	Included	26
BL2017-613	Omitted	26
BL2017-614	Omitted	26
BL2017-615	Omitted	26
BL2017-616	Omitted	26
BL2017-617	Omitted	26
BL2017-618	Omitted	26
BL2017-619	Omitted	26
BL2017-620	Omitted	26
BL2017-621	Omitted	26
BL2017-622	Omitted	26
BL2017-623	Omitted	26
BL2017-624	Omitted	26
BL2017-625	Omitted	26
BL2017-626	Included	26
BL2017-627	Omitted	26
BL2017-628	Omitted	26
BL2017-629	Omitted	26
BL2017-630	Omitted	26
BL2017-631	Omitted	26
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BL2017-636	Omitted	26
BL2017-637	Omitted	26
BL2017-638	Omitted	26
BL2017-639	Omitted	26
BL2017-640	Omitted	26
BL2017-641	Omitted	26
BL2017-642	Omitted	26
BL2017-643	Included	26
BL2017-644	Omitted	26
BL2017-645	Included	26
BL2017-646	Included	26
BL2017-647	Omitted	26
BL2017-648	Omitted	26
BL2017-649	Omitted	26
BL2017-650	Omitted	26
BL2017-651	Omitted	26
BL2017-652	Omitted	26
BL2017-653	Included	26
BL2017-654	Included	26
BL2017-655	Omitted	26
BL2017-656	Omitted	26

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2017-657	Included	26
BL2017-658	Included	26
BL2017-659	Included	26
BL2017-660	Omitted	26
BL2017-661	Omitted	26
BL2017-662	Omitted	26
BL2017-663	Omitted	26
BL2017-664	Omitted	26
BL2017-665	Omitted	26
BL2017-666	Omitted	26
BL2017-667	Omitted	26
BL2017-668	Omitted	26
BL2017-669	Omitted	26
BL2017-670	Omitted	26
BL2017-671	Omitted	26
BL2017-672	Omitted	26
BL2017-673	Omitted	26
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BL2017-691	Omitted	26
BL2017-692	Omitted	26
BL2017-693	Omitted	26
BL2017-694	Omitted	26
BL2017-695	Omitted	26
BL2017-696	Omitted	26
BL2017-697	Omitted	26
BL2017-698	Omitted	26
BL2017-699	Omitted	26
BL2017-700	Omitted	26
BL2017-701	Omitted	26
BL2017-702	Omitted	26
BL2017-703	Omitted	26
BL2017-704	Omitted	26
BL2017-705	Omitted	26

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2017-706	Omitted	26
BL2017-707	Omitted	26
BL2017-708	Included	26
BL2017-709	Omitted	26
BL2017-710	Omitted	26
BL2017-711	Omitted	26
BL2017-712	Omitted	26
BL2017-713	Omitted	26
BL2017-714	Omitted	26
BL2017-715	Omitted	26
BL2017-716	Omitted	26
BL2017-717	Omitted	26
BL2017-718	Omitted	26
BL2017-719	Omitted	26
BL2017-720	Omitted	26
BL2017-721	Included	26
BL2017-722	Omitted	26
BL2017-723	Omitted	26
BL2017-724	Omitted	26
BL2017-725	Included	26
BL2017-726	Included	26
BL2017-727	Included	26
BL2017-728	Included	26
BL2017-729	Omitted	26
BL2017-730	Omitted	26
BL2017-731	Omitted	26
BL2017-732	Omitted	26
BL2017-733	Included	26
BL2017-734	Omitted	26
BL2017-735	Omitted	26
BL2017-736	Omitted	26
BL2017-737	Included	26
BL2017-738	Included	26
BL2017-739	Omitted	26
BL2017-740	Included	26
BL2017-741	Included	26
BL2017-742	Omitted	26
BL2017-743	Omitted	26
BL2017-744	Omitted	26
BL2017-745	Omitted	26
BL2017-746	Omitted	26
BL2017-747	Omitted	26
BL2017-748	Omitted	26
BL2017-749	Omitted	26
BL2017-750	Omitted	26
BL2017-751	Omitted	26
BL2017-752	Omitted	26
BL2017-753	Omitted	26
BL2017-754	Omitted	26

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2017-755	Omitted	26
BL2017-756	Omitted	26
BL2017-757	Omitted	26
BL2017-758	Omitted	26
BL2017-759	Omitted	26
BL2017-760	Omitted	26
BL2017-761	Omitted	26
BL2017-762	Omitted	26
BL2017-763	Omitted	26
BL2017-764	Omitted	26
BL2017-765	Omitted	26
BL2017-766	Omitted	26
BL2017-767	Omitted	26
BL2017-768	Omitted	26
BL2017-769	Omitted	26
BL2017-770	Omitted	26
BL2017-771	Omitted	26
BL2017-772	Omitted	26
BL2017-773	Omitted	26
BL2017-774	Omitted	26
BL2017-775	Omitted	26
BL2017-776	Omitted	26
BL2017-777	Omitted	26
BL2017-778	Omitted	26
BL2017-779	Omitted	26
BL2017-780	Omitted	26
BL2017-781	Omitted	26
BL2017-782	Omitted	26
BL2017-783	Omitted	26
BL2017-784	Omitted	26
BL2017-785	Omitted	26
BL2017-786	Omitted	26
BL2017-787	Included	26
BL2017-788	Included	26
BL2017-789	Included	26
BL2017-790	Omitted	26
BL2017-791	Omitted	26
BL2017-792	Omitted	26
BL2017-793	Omitted	26
BL2017-794	Omitted	26
BL2017-795	Omitted	26
BL2017-796	Omitted	26
BL2017-797	Omitted	26
BL2017-798	Omitted	26
BL2017-799	Included	26
BL2017-800	Omitted	26
BL2017-801	Omitted	26
BL2017-802	Omitted	26
BL2017-803	Omitted	26

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2017-804	Omitted	26
BL2017-805	Omitted	26
BL2017-806	Omitted	26
BL2017-807	Omitted	26
BL2017-808	Omitted	26
BL2017-809	Omitted	26
BL2017-810	Omitted	26
BL2017-811	Omitted	26
BL2017-812	Omitted	26
BL2017-813	Omitted	26
BL2017-814	Omitted	26
BL2017-815	Omitted	26
BL2017-816	Omitted	26
BL2017-817	Omitted	26
BL2017-818	Omitted	26
BL2017-819	Omitted	26
BL2017-820	Omitted	26
BL2017-821	Omitted	26
BL2017-822	Omitted	26
BL2017-823	Omitted	26
BL2017-824	Omitted	26
BL2017-825	Omitted	26
BL2017-826	Omitted	26
BL2017-827	Included	26
BL2017-828	Omitted	26
BL2017-829	Omitted	26
BL2017-830	Omitted	26
BL2017-831	Omitted	26
BL2017-832	Omitted	26
BL2017-833	Omitted	26
Supp. No. 27		
BL2017-608	Included	27
BL2017-688	Included	27
BL2017-700	Omitted	27
BL2017-703	Omitted	27
BL2017-759	Omitted	27
BL2017-796	Omitted	27
BL2017-801	Included	27
BL2017-819	Omitted	27
BL2017-821	Omitted	27
BL2017-834	Included	27
BL2017-835	Included	27
BL2017-836	Omitted	27
BL2017-837	Omitted	27
BL2017-838	Included	27
BL2017-839	Omitted	27
BL2017-840	Omitted	27
BL2017-841	Omitted	27
BL2017-842	Omitted	27

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2017-843	Omitted	27
BL2017-844	Omitted	27
BL2017-845	Omitted	27
BL2017-846	Omitted	27
BL2017-847	Omitted	27
BL2017-848	Omitted	27
BL2017-849	Omitted	27
BL2017-850	Omitted	27
BL2017-851	Omitted	27
BL2017-852	Omitted	27
BL2017-853	Omitted	27
BL2017-854	Omitted	27
BL2017-855	Omitted	27
BL2017-856	Omitted	27
BL2017-857	Omitted	27
BL2017-858	Omitted	27
BL2017-859	Included	27
BL2017-860	Included	27
BL2017-861	Included	27
BL2017-862	Omitted	27
BL2017-863	Omitted	27
BL2017-864	Omitted	27
BL2017-865	Omitted	27
BL2017-866	Included	27
BL2017-867	Included	27
BL2017-868	Included	27
BL2017-869	Omitted	27
BL2017-870	Omitted	27
BL2017-871	Omitted	27
BL2017-872	Omitted	27
BL2017-873	Omitted	27
BL2017-874	Omitted	27
BL2017-875	Omitted	27
BL2017-876	Omitted	27
BL2017-877	Omitted	27
BL2017-878	Omitted	27
BL2017-879	Omitted	27
BL2017-880	Omitted	27
BL2017-881	Omitted	27
BL2017-882	Omitted	27
BL2017-883	Omitted	27
BL2017-884	Omitted	27
BL2017-885	Omitted	27
BL2017-886	Omitted	27
BL2017-887	Omitted	27
BL2017-888	Omitted	27
BL2017-889	Omitted	27
BL2017-890	Omitted	27
BL2017-891	Omitted	27

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2017-892	Omitted	27
BL2017-893	Omitted	27
BL2017-894	Omitted	27
BL2017-895	Omitted	27
BL2017-896	Omitted	27
BL2017-897	Omitted	27
BL2017-898	Included	27
BL2017-899	Included	27
BL2017-900	Included	27
BL2017-901	Omitted	27
BL2017-902	Omitted	27
BL2017-903	Included	27
BL2017-904	Included	27
BL2017-905	Included	27
BL2017-906	Omitted	27
BL2017-907	Included	27
BL2017-908	Included	27
BL2017-909	Omitted	27
BL2017-910	Omitted	27
BL2017-911	Omitted	27
BL2017-912	Omitted	27
BL2017-913	Omitted	27
BL2017-914	Omitted	27
BL2017-915	Omitted	27
BL2017-916	Omitted	27
BL2017-917	Omitted	27
BL2017-918	Omitted	27
BL2017-919	Omitted	27
BL2017-920	Omitted	27
BL2017-921	Omitted	27
BL2017-922	Omitted	27
BL2017-923	Omitted	27
BL2017-924	Omitted	27
BL2017-925	Omitted	27
BL2017-926	Omitted	27
BL2017-927	Omitted	27
BL2017-928	Omitted	27
BL2017-929	Omitted	27
BL2017-930	Omitted	27
BL2017-931	Omitted	27
BL2017-932	Omitted	27
BL2017-933	Omitted	27
BL2017-934	Omitted	27
BL2017-935	Omitted	27
BL2017-936	Omitted	27
BL2017-937	Omitted	27
BL2017-938	Omitted	27
BL2017-939	Included	27
BL2017-940	Included	27

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2017-941	Omitted	27
BL2017-942	Omitted	27
BL2017-943	Omitted	27
BL2017-944	Omitted	27
BL2017-945	Omitted	27
BL2017-946	Omitted	27
BL2017-947	Omitted	27
BL2017-948	Omitted	27
BL2017-949	Omitted	27
BL2017-950	Omitted	27
BL2017-951	Omitted	27
BL2017-952	Included	27
BL2017-953	Included	27
BL2017-954	Omitted	27
BL2017-955	Omitted	27
BL2017-956	Omitted	27
BL2017-957	Omitted	27
BL2017-958	Omitted	27
BL2017-959	Omitted	27
BL2017-960	Omitted	27
BL2017-961	Omitted	27
BL2017-962	Omitted	27
BL2017-963	Omitted	27
BL2017-964	Omitted	27
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BL2017-970	Omitted	27
BL2017-971	Omitted	27
BL2017-972	Omitted	27
BL2017-973	Omitted	27
BL2017-974	Omitted	27
BL2017-975	Omitted	27
BL2017-976	Omitted	27
BL2017-977	Omitted	27
BL2017-978	Omitted	27
BL2017-979	Omitted	27
BL2017-980	Included	27
BL2017-981	Omitted	27
BL2017-982	Omitted	27
BL2017-983	Included	27
BL2017-984	Included	27
BL2017-985	Omitted	27
BL2017-986	Included	27
BL2017-987	Omitted	27
BL2017-988	Omitted	27
BL2017-989	Omitted	27

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2017-990	Omitted	27
BL2017-991	Omitted	27
BL2017-992	Omitted	27
BL2017-993	Omitted	27
BL2017-994	Omitted	27
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BL2017-996	Omitted	27
BL2017-997	Omitted	27
BL2017-998	Omitted	27
BL2017-999	Omitted	27
BL2017-1000	Omitted	27
BL2017-1001	Omitted	27
BL2017-1002	Omitted	27
BL2017-1003	Omitted	27
BL2017-1004	Omitted	27
BL2017-1005	Omitted	27
BL2017-1006	Omitted	27
BL2017-1007	Omitted	27
BL2017-1008	Omitted	27
BL2017-1009	Omitted	27
BL2017-1010	Omitted	27
BL2017-1011	Omitted	27
BL2017-1012	Omitted	27
BL2017-1013	Omitted	27
BL2017-1014	Omitted	27
BL2017-1015	Omitted	27
BL2017-1016	Omitted	27
BL2017-1017	Omitted	27
BL2017-1018	Omitted	27
BL2017-1019	Omitted	27
BL2017-1020	Omitted	27
BL2017-1021	Omitted	27
BL2017-1022	Omitted	27
BL2017-1023	Omitted	27
BL2017-1024	Omitted	27
BL2017-1025	Omitted	27
BL2017-1026	Omitted	27
BL2017-1027	Omitted	27
BL2017-1028	Omitted	27
BL2017-1029	Omitted	27
BL2017-1030	Omitted	27
BL2017-1031	Omitted	27
BL2017-1032	Included	27
BL2017-1033	Omitted	27
BL2017-1034	Omitted	27
BL2017-1035	Omitted	27
BL2017-1036	Omitted	27
BL2017-1037	Omitted	27

Ord. No./Res. No.	Included/ Omitted	Supp. No.
Supp. No. 28		
RS2018-1036	Included	28
BL2017-1038	Omitted	28
BL2017-1039	Omitted	28
BL2017-1040	Omitted	28
BL2018-1041	Omitted	28
BL2018-1042	Omitted	28
BL2018-1043	Omitted	28
BL2018-1044	Omitted	28
BL2018-1045	Omitted	28
BL2018-1046	Omitted	28
BL2018-1047	Omitted	28
BL2018-1048	Omitted	28
BL2018-1049	Omitted	28
BL2018-1050	Omitted	28
BL2018-1051	Omitted	28
BL2018-1052	Omitted	28
BL2018-1053	Omitted	28
BL2018-1054	Included	28
BL2018-1055	Included	28
BL2018-1056	Omitted	28
BL2018-1057	Included	28
BL2018-1058	Omitted	28
BL2018-1059	Omitted	28
BL2018-1060	Omitted	28
BL2018-1061	Omitted	28
BL2018-1062	Omitted	28
BL2018-1063	Included	28
BL2018-1064	Omitted	28
BL2018-1065	Omitted	28
BL2018-1066	Omitted	28
BL2018-1067	Omitted	28
BL2018-1068	Omitted	28
BL2018-1069	Omitted	28
BL2018-1070	Omitted	28
BL2018-1071	Omitted	28
BL2018-1072	Omitted	28
BL2018-1073	Omitted	28
BL2018-1074	Omitted	28
BL2018-1075	Omitted	28
BL2018-1076	Omitted	28
BL2018-1077	Omitted	28
BL2018-1078	Omitted	28
BL2018-1079	Omitted	28
BL2018-1080	Omitted	28
BL2018-1081	Omitted	28
BL2018-1082	Omitted	28
BL2018-1083	Omitted	28
BL2018-1084	Omitted	28

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2018-1085	Omitted	28
BL2018-1086	Omitted	28
BL2018-1087	Omitted	28
BL2018-1088	Omitted	28
BL2018-1089	Omitted	28
BL2018-1090	Omitted	28
BL2018-1091	Omitted	28
BL2018-1092	Omitted	28
BL2018-1093	Omitted	28
BL2018-1094	Omitted	28
BL2018-1095	Omitted	28
BL2018-1096	Omitted	28
BL2018-1097	Omitted	28
BL2018-1098	Omitted	28
BL2018-1099	Omitted	28
BL2018-1100	Omitted	28
BL2018-1101	Omitted	28
BL2018-1102	Omitted	28
BL2018-1103	Omitted	28
BL2018-1104	Omitted	28
BL2018-1105	Omitted	28
BL2018-1106	Omitted	28
BL2018-1107	Omitted	28
BL2018-1108	Omitted	28
BL2018-1109	Omitted	28
BL2018-1110	Omitted	28
BL2018-1111	Included	28
BL2018-1112	Omitted	28
BL2018-1113	Omitted	28
BL2018-1114	Omitted	28
BL2018-1115	Omitted	28
BL2018-1116	Omitted	28
BL2018-1117	Omitted	28
BL2018-1118	Omitted	28
BL2018-1119	Omitted	28
BL2018-1120	Omitted	28
BL2018-1121	Omitted	28
BL2018-1122	Included	28
BL2018-1123	Included	28
BL2018-1124	Omitted	28
BL2018-1125	Omitted	28
BL2018-1126	Omitted	28
BL2018-1127	Omitted	28
BL2018-1128	Omitted	28
BL2018-1129	Omitted	28
BL2018-1130	Omitted	28
BL2018-1131	Omitted	28
BL2018-1132	Omitted	28
BL2018-1133	Omitted	28

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2018-1134	Omitted	28
BL2018-1135	Omitted	28
BL2018-1136	Omitted	28
BL2018-1137	Omitted	28
BL2018-1138	Omitted	28
BL2018-1139	Omitted	28
BL2018-1140	Included	28
BL2018-1141	Omitted	28
BL2018-1142	Included	28
BL2018-1143	Omitted	28
BL2018-1144	Omitted	28
BL2018-1145	Omitted	28
BL2018-1146	Omitted	28
BL2018-1147	Omitted	28
BL2018-1148	Omitted	28
BL2018-1149	Omitted	28
BL2018-1150	Omitted	28
BL2018-1151	Omitted	28
BL2018-1152	Omitted	28
BL2018-1153	Omitted	28
BL2018-1154	Omitted	28
BL2018-1155	Omitted	28
BL2018-1156	Omitted	28
BL2018-1157	Included	28
BL2018-1158	Omitted	28
BL2018-1159	Included	28
BL2018-1160	Omitted	28
BL2018-1161	Omitted	28
BL2018-1162	Omitted	28
BL2018-1163	Omitted	28
BL2018-1164	Omitted	28
BL2018-1165	Omitted	28
BL2018-1166	Omitted	28
BL2018-1167	Omitted	28
BL2018-1168	Omitted	28
BL2018-1169	Omitted	28
BL2018-1170	Omitted	28
BL2018-1171	Included	28
BL2018-1172	Included	28
BL2018-1173	Omitted	28
BL2018-1174	Omitted	28
BL2018-1175	Omitted	28
BL2018-1176	Omitted	28
BL2018-1177	Omitted	28
BL2018-1178	Omitted	28
BL2018-1179	Omitted	28
BL2018-1180	Omitted	28
BL2018-1181	Included	28
BL2018-1182	Omitted	28

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2018-1183	Omitted	28
BL2018-1184	Omitted	28
BL2018-1185	Omitted	28
BL2018-1186	Omitted	28
BL2018-1187	Included	28
BL2018-1188	Omitted	28
BL2018-1189	Omitted	28
BL2018-1190	Omitted	28
BL2018-1191	Omitted	28
BL2018-1192	Omitted	28
BL2018-1193	Omitted	28
BL2018-1194	Omitted	28
BL2018-1195	Omitted	28
BL2018-1196	Omitted	28
BL2018-1197	Omitted	28
BL2018-1198	Omitted	28
BL2018-1199	Included	28
BL2018-1200	Included	28
BL2018-1201	Omitted	28
BL2018-1202	Included	28
BL2018-1203	Included	28
BL2018-1204	Included	28
BL2018-1205	Omitted	28
BL2018-1206	Omitted	28
BL2018-1207	Omitted	28
BL2018-1208	Omitted	28
BL2018-1209	Omitted	28
BL2018-1210	Omitted	28
BL2018-1211	Omitted	28
BL2018-1212	Omitted	28
BL2018-1213	Omitted	28
BL2018-1214	Omitted	28
BL2018-1215	Omitted	28
BL2018-1216	Omitted	28
BL2018-1217	Omitted	28
BL2018-1218	Omitted	28
BL2018-1219	Omitted	28
BL2018-1220	Omitted	28
BL2018-1221	Omitted	28
BL2018-1222	Omitted	28
BL2018-1223	Omitted	28
BL2018-1224	Omitted	28
BL2018-1225	Omitted	28
BL2018-1226	Omitted	28
BL2018-1227	Omitted	28
BL2018-1228	Omitted	28
BL2018-1229	Omitted	28
BL2018-1230	Omitted	28
BL2018-1231	Omitted	28

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2018-1232	Omitted	28
BL2018-1233	Omitted	28
BL2018-1234	Omitted	28
BL2018-1235	Omitted	28
BL2018-1236	Omitted	28
BL2018-1237	Omitted	28
BL2018-1238	Omitted	28
BL2018-1239	Omitted	28
BL2018-1240	Omitted	28
BL2018-1241	Omitted	28
BL2018-1242	Omitted	28
BL2018-1243	Omitted	28
BL2018-1244	Omitted	28
BL2018-1245	Omitted	28
BL2018-1246	Omitted	28
BL2018-1247	Omitted	28
BL2018-1248	Omitted	28
BL2018-1249	Omitted	28
BL2018-1250	Omitted	28
BL2018-1251	Omitted	28
BL2018-1252	Omitted	28
BL2018-1253	Omitted	28
BL2018-1254	Omitted	28
BL2018-1255	Included	28
BL2018-1256	Included	28
BL2018-1257	Omitted	28
BL2018-1258	Omitted	28
BL2018-1259	Omitted	28
BL2018-1260	Omitted	28
BL2018-1261	Omitted	28
BL2018-1262	Omitted	28
BL2018-1263	Omitted	28
BL2018-1264	Omitted	28
BL2018-1265	Omitted	28
BL2018-1266	Omitted	28
BL2018-1267	Omitted	28
BL2018-1268	Omitted	28
BL2018-1269	Omitted	28
BL2018-1270	Omitted	28
BL2018-1271	Omitted	28
BL2018-1272	Omitted	28
BL2018-1273	Omitted	28
BL2018-1274	Omitted	28
BL2018-1275	Omitted	28
BL2018-1276	Omitted	28
BL2018-1277	Omitted	28
BL2018-1278	Omitted	28
BL2018-1279	Omitted	28
BL2018-1280	Omitted	28

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2018-1281	Omitted	28
BL2018-1282	Included	28
BL2018-1283	Omitted	28
BL2018-1284	Omitted	28
BL2018-1285	Omitted	28
BL2018-1286	Omitted	28
BL2018-1287	Omitted	28
BL2018-1288	Omitted	28
BL2018-1289	Included	28
BL2018-1290	Omitted	28
BL2018-1291	Omitted	28
BL2018-1292	Included	28
BL2018-1293	Omitted	28
BL2018-1294	Omitted	28
BL2018-1295	Included	28
BL2018-1296	Omitted	28
BL2018-1297	Omitted	28
BL2018-1298	Omitted	28
BL2018-1299	Omitted	28
BL2018-1300	Omitted	28
BL2018-1301	Omitted	28
BL2018-1302	Omitted	28
BL2018-1303	Omitted	28
BL2018-1304	Omitted	28
Supp. No. 29		
Amdts. of 11-6-2018	Included	29
BL2018-1183	Included	29
BL2018-1279	Included	29
BL2018-1281	Included	29
BL2018-1283	Included	29
BL2018-1288	Included	29
BL2018-1305	Omitted	29
BL2018-1306	Omitted	29
BL2018-1307	Omitted	29
BL2018-1308	Omitted	29
BL2018-1309	Omitted	29
BL2018-1310	Omitted	29
BL2018-1311	Omitted	29
BL2018-1312	Omitted	29
BL2018-1313	Omitted	29
BL2018-1314	Omitted	29
BL2018-1315	Omitted	29
BL2018-1316	Included	29
BL2018-1317	Included	29
BL2018-1318	Omitted	29
BL2018-1319	Omitted	29
BL2018-1320	Omitted	29
BL2018-1321	Omitted	29
BL2018-1322	Omitted	29

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2018-1323	Omitted	29
BL2018-1324	Omitted	29
BL2018-1325	Omitted	29
BL2018-1326	Omitted	29
BL2018-1327	Omitted	29
BL2018-1328	Omitted	29
BL2018-1329	Included	29
BL2018-1330	Omitted	29
BL2018-1331	Omitted	29
BL2018-1332	Omitted	29
BL2018-1333	Omitted	29
BL2018-1334	Omitted	29
BL2018-1335	Omitted	29
BL2018-1336	Omitted	29
BL2018-1337	Omitted	29
BL2018-1338	Omitted	29
BL2018-1339	Omitted	29
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BL2018-1341	Omitted	29
BL2018-1342	Omitted	29
BL2018-1343	Omitted	29
BL2018-1344	Omitted	29
BL2018-1345	Omitted	29
BL2018-1346	Omitted	29
BL2018-1347	Omitted	29
BL2018-1348	Omitted	29
BL2018-1349	Omitted	29
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BL2018-1351	Omitted	29
BL2018-1352	Omitted	29
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BL2018-1354	Omitted	29
BL2018-1355	Omitted	29
BL2018-1356	Omitted	29
BL2018-1357	Omitted	29
BL2018-1358	Omitted	29
BL2018-1359	Omitted	29
BL2018-1360	Omitted	29
BL2018-1361	Omitted	29
BL2018-1362	Omitted	29
BL2018-1363	Omitted	29
BL2018-1364	Omitted	29
BL2018-1365	Omitted	29
BL2018-1366	Omitted	29
BL2018-1367	Omitted	29
BL2018-1368	Omitted	29
BL2018-1369	Omitted	29
BL2018-1370	Omitted	29
BL2018-1371	Omitted	29

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2018-1372	Omitted	29
BL2018-1373	Omitted	29
BL2018-1374	Omitted	29
BL2018-1375	Included	29
BL2018-1376	Included	29
BL2018-1377	Omitted	29
BL2018-1378	Omitted	29
BL2018-1379	Omitted	29
BL2018-1380	Omitted	29
BL2018-1381	Omitted	29
BL2018-1382	Omitted	29
BL2018-1383	Omitted	29
BL2018-1384	Omitted	29
BL2018-1385	Included	29
BL2018-1386	Omitted	29
BL2018-1387	Included	29
BL2018-1388	Omitted	29
BL2018-1389	Omitted	29
BL2018-1390	Omitted	29
BL2018-1391	Omitted	29
BL2018-1392	Omitted	29
BL2018-1393	Omitted	29
BL2018-1394	Omitted	29
BL2018-1395	Omitted	29
BL2018-1396	Omitted	29
BL2018-1397	Omitted	29
BL2018-1398	Omitted	29
BL2018-1399	Omitted	29
BL2018-1400	Omitted	29
BL2018-1401	Omitted	29
BL2018-1402	Omitted	29
BL2018-1403	Included	29
BL2018-1404	Omitted	29
BL2018-1405	Included	29
BL2018-1406	Included	29
BL2018-1407	Omitted	29
BL2018-1408	Omitted	29
BL2018-1409	Omitted	29
BL2018-1410	Omitted	29
BL2018-1411	Omitted	29
BL2018-1412	Omitted	29
BL2018-1413	Omitted	29
BL2018-1414	Omitted	29
BL2018-1415	Omitted	29
BL2018-1416	Omitted	29
BL2018-1417	Omitted	29
BL2018-1418	Omitted	29
BL2018-1419	Included	29
BL2018-1420	Omitted	29

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2018-1421	Omitted	29
BL2018-1422	Omitted	29
BL2018-1423	Omitted	29
BL2018-1424	Omitted	29
BL2018-1425	Omitted	29
BL2018-1426	Omitted	29
BL2018-1427	Omitted	29
BL2018-1428	Omitted	29
BL2018-1429	Omitted	29
BL2018-1430	Omitted	29
BL2018-1431	Omitted	29
BL2018-1432	Omitted	29
BL2018-1433	Omitted	29
BL2018-1434	Omitted	29
BL2018-1435	Omitted	29
BL2018-1436	Omitted	29
BL2018-1437	Omitted	29
BL2018-1438	Omitted	29
BL2018-1439	Omitted	29
BL2018-1440	Included	29
BL2018-1441	Omitted	29
BL2018-1442	Omitted	29
BL2018-1443	Omitted	29
BL2018-1444	Omitted	29
BL2018-1445	Omitted	29
BL2018-1446	Omitted	29
BL2018-1447	Omitted	29
BL2018-1448	Omitted	29
BL2018-1449	Omitted	29
BL2018-1450	Omitted	29
BL2018-1451	Omitted	29
Supp. No. 30		
BL2018-1407	Included	30
BL2018-1416	Included	30
BL2018-1417	Included	30
BL2018-1418	Included	30
BL2018-1439	Included	30
BL2018-1441	Included	30
BL2018-1452	Omitted	30
BL2018-1453	Omitted	30
BL2018-1454	Omitted	30
BL2018-1455	Included	30
BL2018-1456	Omitted	30
BL2018-1457	Included	30
BL2019-1458	Omitted	30
BL2019-1459	Omitted	30
BL2019-1460	Omitted	30
BL2019-1461	Omitted	30
BL2019-1462	Omitted	30

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2019-1463	Omitted	30
BL2019-1464	Omitted	30
BL2019-1465	Omitted	30
BL2019-1466	Omitted	30
BL2019-1467	Omitted	30
BL2019-1468	Omitted	30
BL2019-1469	Omitted	30
BL2019-1470	Omitted	30
BL2019-1471	Omitted	30
BL2019-1472	Included	30
BL2019-1473	Included	30
BL2019-1474	Omitted	30
BL2019-1475	Included	30
BL2019-1476	Omitted	30
BL2019-1477	Omitted	30
BL2019-1478	Omitted	30
BL2019-1479	Omitted	30
BL2019-1480	Omitted	30
BL2019-1481	Omitted	30
BL2019-1482	Omitted	30
BL2019-1483	Omitted	30
BL2019-1484	Omitted	30
BL2019-1485	Omitted	30
BL2019-1486	Omitted	30
BL2019-1487	Included	30
BL2019-1488	Omitted	30
BL2019-1489	Omitted	30
BL2019-1490	Included	30
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BL2019-1492	Omitted	30
BL2019-1493	Omitted	30
BL2019-1494	Omitted	30
BL2019-1495	Omitted	30
BL2019-1496	Omitted	30
BL2019-1497	Omitted	30
BL2019-1498	Omitted	30
BL2019-1499	Omitted	30
BL2019-1500	Omitted	30
BL2019-1501	Omitted	30
BL2019-1502	Omitted	30
BL2019-1503	Omitted	30
BL2019-1504	Omitted	30
BL2019-1505	Omitted	30
BL2019-1506	Omitted	30
BL2019-1507	Omitted	30
BL2019-1508	Omitted	30
BL2019-1509	Omitted	30
BL2019-1510	Omitted	30
BL2019-1511	Omitted	30

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2019-1512	Omitted	30
BL2019-1513	Omitted	30
BL2019-1514	Omitted	30
BL2019-1515	Omitted	30
BL2019-1516	Omitted	30
BL2019-1517	Included	30
BL2019-1518	Omitted	30
BL2019-1519	Omitted	30
BL2019-1520	Omitted	30
BL2019-1521	Omitted	30
BL2019-1522	Omitted	30
BL2019-1523	Omitted	30
BL2019-1524	Omitted	30
BL2019-1525	Included	30
BL2019-1526	Included	30
BL2019-1527	Omitted	30
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BL2019-1530	Omitted	30
BL2019-1531	Omitted	30
BL2019-1532	Omitted	30
BL2019-1533	Omitted	30
BL2019-1534	Omitted	30
BL2019-1535	Omitted	30
BL2019-1536	Omitted	30
BL2019-1537	Omitted	30
BL2019-1538	Omitted	30
BL2019-1539	Omitted	30
BL2019-1540	Included	30
BL2019-1541	Omitted	30
BL2019-1542	Omitted	30
BL2019-1543	Omitted	30
BL2019-1544	Omitted	30
BL2019-1545	Omitted	30
BL2019-1546	Omitted	30
BL2019-1547	Omitted	30
BL2019-1548	Omitted	30
BL2019-1549	Omitted	30
BL2019-1550	Omitted	30
BL2019-1551	Omitted	30
BL2019-1552	Omitted	30
BL2019-1553	Omitted	30
BL2019-1554	Omitted	30
BL2019-1555	Omitted	30
BL2019-1556	Omitted	30
BL2019-1557	Omitted	30
BL2019-1558	Omitted	30
BL2019-1559	Omitted	30
BL2019-1560	Included	30

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2019-1561	Included	30
BL2019-1562	Omitted	30
BL2019-1563	Omitted	30
BL2019-1564	Omitted	30
BL2019-1565	Omitted	30
BL2019-1566	Omitted	30
BL2019-1567	Omitted	30
BL2019-1568	Omitted	30
BL2019-1569	Omitted	30
BL2019-1570	Omitted	30
BL2019-1571	Omitted	30
BL2019-1572	Omitted	30
BL2019-1573	Omitted	30
BL2019-1574	Omitted	30
BL2019-1575	Omitted	30
BL2019-1576	Omitted	30
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BL2019-1578	Omitted	30
BL2019-1579	Omitted	30
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BL2019-1581	Omitted	30
BL2019-1582	Omitted	30
BL2019-1583	Omitted	30
BL2019-1584	Omitted	30
BL2019-1585	Omitted	30
BL2019-1586	Omitted	30
BL2019-1587	Omitted	30
BL2019-1588	Omitted	30
BL2019-1589	Omitted	30
BL2019-1590	Omitted	30
BL2019-1591	Omitted	30
BL2019-1592	Omitted	30
BL2019-1593	Omitted	30
BL2019-1594	Omitted	30
BL2019-1595	Omitted	30
BL2019-1596	Omitted	30
BL2019-1597	Omitted	30
BL2019-1598	Included	30
BL2019-1599	Included	30
BL2019-1600	Included	30
BL2019-1601	Included	30
BL2019-1602	Included	30
BL2019-1603	Omitted	30
BL2019-1604	Omitted	30
BL2019-1605	Omitted	30
BL2019-1606	Omitted	30
BL2019-1607	Omitted	30
BL2019-1608	Omitted	30
BL2019-1609	Omitted	30

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2019-1610	Omitted	30
BL2019-1611	Omitted	30
BL2019-1612	Included	30
BL2019-1613	Included	30
BL2019-1614	Omitted	30
BL2019-1615	Omitted	30
BL2019-1616	Omitted	30
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BL2019-1621	Omitted	30
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BL2019-1624	Omitted	30
BL2019-1625	Omitted	30
BL2019-1626	Omitted	30
BL2019-1627	Omitted	30
BL2019-1628	Omitted	30
BL2019-1629	Omitted	30
BL2019-1630	Included	30
BL2019-1631	Included	30
BL2019-1632	Omitted	30
BL2019-1633	Included	30
BL2019-1634	Omitted	30
BL2019-1635	Included	30
BL2019-1636	Included	30
BL2019-1637	Included	30
BL2019-1638	Omitted	30
BL2019-1639	Omitted	30
BL2019-1640	Omitted	30
BL2019-1641	Omitted	30
BL2019-1642	Omitted	30
BL2019-1643	Omitted	30
BL2019-1644	Omitted	30
BL2019-1645	Omitted	30
BL2019-1646	Omitted	30
BL2019-1647	Omitted	30
BL2019-1648	Omitted	30
BL2019-1649	Omitted	30
BL2019-1650	Omitted	30
BL2019-1651	Omitted	30
BL2019-1652	Omitted	30
BL2019-1653	Omitted	30
BL2019-1654	Omitted	30
BL2019-1655	Omitted	30
BL2019-1656	Included	30
BL2019-1657	Included	30
BL2019-1658	Included	30

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2019-1659	Included	30
BL2019-1660	Omitted	30
BL2019-1661	Omitted	30
BL2019-1662	Omitted	30
BL2019-1663	Omitted	30
BL2019-1664	Omitted	30
BL2019-1665	Omitted	30
BL2019-1666	Omitted	30
BL2019-1667	Omitted	30
BL2019-1668	Omitted	30
BL2019-1669	Omitted	30
BL2019-1670	Omitted	30
BL2019-1671	Omitted	30
BL2019-1672	Omitted	30
BL2019-1673	Omitted	30
BL2019-1674	Omitted	30
BL2019-1675	Omitted	30
BL2019-1676	Omitted	30
BL2019-1677	Omitted	30
BL2019-1678	Omitted	30
BL2019-1679	Omitted	30
BL2019-1680	Omitted	30
BL2019-1681	Omitted	30
BL2019-1682	Omitted	30
BL2019-1683	Omitted	30
BL2019-1684	Omitted	30
BL2019-1685	Omitted	30
BL2019-1686	Omitted	30
BL2019-1687	Omitted	30
BL2019-1688	Omitted	30
BL2019-1689	Omitted	30
BL2019-1690	Omitted	30
BL2019-1691	Omitted	30
BL2019-1692	Omitted	30
BL2019-1693	Omitted	30
BL2019-1694	Omitted	30
BL2019-1695	Omitted	30
BL2019-1696	Omitted	30
BL2019-1697	Omitted	30
BL2019-1698	Omitted	30
BL2019-1699	Omitted	30
BL2019-1700	Omitted	30
BL2019-1701	Omitted	30
BL2019-1702	Omitted	30
BL2019-1703	Omitted	30
BL2019-1704	Omitted	30
BL2019-1705	Omitted	30
BL2019-1706	Omitted	30
BL2019-1707	Omitted	30

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2019-1708	Omitted	30
BL2019-1709	Omitted	30
BL2019-1710	Omitted	30
BL2019-1711	Omitted	30
BL2019-1712	Omitted	30
BL2019-1713	Omitted	30
BL2019-1714	Omitted	30
BL2019-1715	Omitted	30
BL2019-1716	Omitted	30
BL2019-1717	Omitted	30
BL2019-1718	Omitted	30
BL2019-1719	Omitted	30
BL2019-1720	Omitted	30
BL2019-1721	Omitted	30
BL2019-1722	Omitted	30
BL2019-1723	Omitted	30
BL2019-1724	Omitted	30
BL2019-1725	Omitted	30
BL2019-1726	Omitted	30
BL2019-1727	Omitted	30
BL2019-1728	Omitted	30
BL2019-1729	Omitted	30
BL2019-1730	Omitted	30
BL2019-1731	Included	30
BL2019-1732	Included	30
BL2019-1733	Omitted	30
BL2019-1734	Omitted	30
BL2019-1735	Omitted	30
BL2019-1736	Omitted	30
BL2019-1737	Omitted	30
BL2019-1738	Omitted	30
BL2019-1739	Omitted	30
BL2019-1740	Included	30
BL2019-1741	Omitted	30
BL2019-1742	Omitted	30
BL2019-1743	Omitted	30
BL2019-1744	Omitted	30
BL2019-1745	Omitted	30
BL2019-1746	Omitted	30
BL2019-1747	Omitted	30
BL2019-1748	Omitted	30
BL2019-1749	Omitted	30
BL2019-1750	Omitted	30
BL2019-1751	Omitted	30
BL2019-1752	Omitted	30
BL2019-1753	Omitted	30
BL2019-1754	Omitted	30
BL2019-1755	Omitted	30
BL2019-1756	Omitted	30

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2019-1757	Omitted	30
BL2019-1758	Omitted	30
BL2019-1759	Omitted	30
BL2019-1760	Omitted	30
BL2019-1761	Omitted	30
BL2019-1762	Omitted	30
BL2019-1763	Omitted	30
BL2019-1764	Omitted	30
BL2019-1765	Omitted	30
BL2019-1766	Omitted	30
BL2019-1767	Omitted	30
BL2019-1768	Omitted	30
BL2019-1769	Omitted	30
BL2019-1770	Omitted	30
BL2019-1771	Omitted	30
BL2019-1772	Omitted	30
BL2019-1773	Omitted	30
BL2019-1774	Omitted	30
BL2019-1775	Omitted	30
BL2019-1776	Omitted	30
BL2019-1777	Omitted	30
BL2019-1778	Omitted	30
BL2019-1779	Omitted	30
BL2019-1780	Omitted	30
BL2019-1781	Omitted	30
BL2019-1782	Omitted	30
BL2019-1783	Omitted	30
BL2019-1784	Omitted	30
BL2019-1785	Omitted	30
BL2019-1786	Omitted	30
BL2019-1787	Omitted	30
BL2019-1788	Omitted	30
BL2019-1789	Omitted	30
BL2019-1790	Omitted	30
BL2019-1791	Omitted	30
BL2019-1792	Omitted	30
BL2019-1793	Omitted	30
BL2019-1794	Omitted	30
BL2019-1795	Omitted	30
BL2019-1796	Omitted	30
BL2019-1797	Omitted	30
BL2019-1798	Omitted	30
BL2019-1799	Omitted	30
BL2019-1800	Included	30
Supp. No. 31		
BL2019-1	Included	31
BL2019-2	Included	31
BL2019-3	Omitted	31
BL2019-4	Omitted	31

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2019-5	Included	31
BL2019-6	Included	31
BL2019-7	Omitted	31
BL2019-8	Omitted	31
BL2019-9	Omitted	31
BL2019-10	Omitted	31
BL2019-11	Omitted	31
BL2019-12	Omitted	31
BL2019-13	Omitted	31
BL2019-14	Omitted	31
BL2019-15	Omitted	31
BL2019-16	Omitted	31
BL2019-17	Omitted	31
BL2019-18	Omitted	31
BL2019-19	Omitted	31
BL2019-20	Omitted	31
BL2019-21	Omitted	31
BL2019-22	Omitted	31
BL2019-23	Omitted	31
BL2019-24	Omitted	31
BL2019-25	Omitted	31
BL2019-26	Omitted	31
BL2019-27	Omitted	31
BL2019-28	Omitted	31
BL2019-29	Omitted	31
BL2019-30	Omitted	31
BL2019-31	Omitted	31
BL2019-32	Included	31
BL2019-33	Omitted	31
BL2019-34	Omitted	31
BL2019-35	Omitted	31
BL2019-36	Omitted	31
BL2019-37	Omitted	31
BL2019-38	Omitted	31
BL2019-39	Omitted	31
BL2019-40	Omitted	31
BL2019-41	Omitted	31
BL2019-42	Included	31
BL2019-43	Included	31
BL2019-44	Included	31
BL2019-45	Included	31
BL2019-46	Included	31
BL2019-47	Omitted	31
BL2019-48	Omitted	31
BL2019-49	Omitted	31
BL2019-50	Omitted	31
BL2019-51	Omitted	31
BL2019-52	Omitted	31
BL2019-53	Omitted	31

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2019-54	Omitted	31
BL2019-55	Omitted	31
BL2019-56	Omitted	31
BL2019-57	Omitted	31
BL2019-58	Omitted	31
BL2019-59	Omitted	31
BL2019-60	Omitted	31
BL2019-61	Omitted	31
BL2019-62	Omitted	31
BL2019-63	Omitted	31
BL2019-64	Omitted	31
BL2019-65	Omitted	31
BL2019-66	Omitted	31
BL2019-67	Omitted	31
BL2019-68	Omitted	31
BL2019-69	Omitted	31
BL2019-70	Omitted	31
BL2019-71	Omitted	31
BL2019-72	Omitted	31
BL2019-73	Omitted	31
BL2019-74	Included	31
BL2019-75	Omitted	31
BL2019-76	Omitted	31
BL2019-77	Included	31
BL2019-78	Omitted	31
BL2019-79	Omitted	31
BL2019-80	Omitted	31
BL2019-81	Omitted	31
BL2019-82	Omitted	31
BL2019-83	Omitted	31
BL2019-84	Omitted	31
BL2019-85	Omitted	31
BL2019-86	Omitted	31
BL2019-87	Omitted	31
BL2019-88	Omitted	31
BL2019-89	Omitted	31
BL2019-90	Omitted	31
BL2019-91	Omitted	31
BL2019-92	Omitted	31
BL2019-93	Omitted	31
BL2019-94	Omitted	31
Supp. No. 32		
BL2019-30	Included	32
BL2019-60	Omitted	32
BL2019-68	Omitted	32
BL2019-85	Omitted	32
BL2019-86	Omitted	32
BL2019-87	Omitted	32
BL2019-89	Omitted	32

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2019-91	Omitted	32
BL2019-92	Omitted	32
BL2019-93	Omitted	32
BL2019-95	Included	32
BL2019-96	Omitted	32
BL2019-97	Omitted	32
BL2019-98	Omitted	32
BL2019-99	Omitted	32
BL2019-100	Omitted	32
BL2019-101	Omitted	32
BL2019-102	Omitted	32
BL2019-103	Omitted	32
BL2019-104	Omitted	32
BL2019-105	Omitted	32
BL2019-106	Omitted	32
BL2019-107	Omitted	32
BL2019-108	Omitted	32
BL2019-109	Omitted	32
BL2019-110	Included	32
BL2019-111	Included	32
BL2019-112	Omitted	32
BL2019-113	Included	32
BL2020-114	Omitted	32
BL2020-115	Omitted	32
BL2020-116	Included	32
BL2020-117	Omitted	32
BL2020-118	Omitted	32
BL2020-119	Omitted	32
BL2020-120	Omitted	32
BL2020-121	Omitted	32
BL2020-122	Omitted	32
BL2020-123	Omitted	32
BL2020-124	Omitted	32
BL2020-125	Omitted	32
BL2020-126	Omitted	32
BL2020-127	Omitted	32
BL2020-128	Omitted	32
BL2020-129	Omitted	32
BL2020-130	Omitted	32
BL2020-131	Omitted	32
BL2020-132	Omitted	32
BL2020-133	Omitted	32
BL2020-134	Omitted	32
BL2020-135	Omitted	32
BL2020-136	Omitted	32
BL2020-137	Omitted	32
BL2020-138	Omitted	32
BL2020-139	Omitted	32
BL2020-140	Omitted	32

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2020-141	Omitted	32
BL2020-142	Omitted	32
BL2020-143	Omitted	32
BL2020-144	Omitted	32
BL2020-145	Omitted	32
BL2020-146	Omitted	32
BL2020-147	Omitted	32
BL2020-148	Omitted	32
BL2020-149	Omitted	32
BL2020-150	Omitted	32
BL2020-151	Omitted	32
BL2020-152	Omitted	32
BL2020-153	Omitted	32
BL2020-154	Omitted	32
BL2020-155	Omitted	32
BL2020-156	Omitted	32
BL2020-157	Omitted	32
BL2020-158	Omitted	32
BL2020-159	Omitted	32
BL2020-160	Omitted	32
BL2020-161	Omitted	32
BL2020-162	Included	32
BL2020-163	Omitted	32
BL2020-164	Omitted	32
BL2020-165	Omitted	32
BL2020-166	Omitted	32
BL2020-167	Omitted	32
BL2020-168	Omitted	32
BL2020-169	Omitted	32
BL2020-170	Omitted	32
BL2020-171	Omitted	32
BL2020-172	Omitted	32
BL2020-173	Omitted	32
BL2020-174	Omitted	32
BL2020-175	Omitted	32
BL2020-176	Omitted	32
Supp. No. 33		
BL2019-109	Included	33
BL2020-117	Included	33
BL2020-149	Included	33
BL2020-151	Included	33
BL2020-177	Omitted	33
BL2020-178	Omitted	33
BL2020-179	Omitted	33
BL2020-180	Omitted	33
BL2020-181	Omitted	33
BL2020-182	Omitted	33
BL2020-183	Omitted	33
BL2020-184	Omitted	33

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2020-185	Included	33
BL2020-186	Included	33
BL2020-187	Omitted	33
BL2020-188	Omitted	33
BL2020-189	Omitted	33
BL2020-190	Omitted	33
BL2020-191	Omitted	33
BL2020-192	Omitted	33
BL2020-193	Omitted	33
BL2020-194	Omitted	33
BL2020-195	Omitted	33
BL2020-196	Included	33
BL2020-197	Omitted	33
BL2020-198	Omitted	33
BL2020-199	Omitted	33
BL2020-200	Omitted	33
BL2020-201	Omitted	33
BL2020-202	Omitted	33
BL2020-203	Omitted	33
BL2020-204	Omitted	33
BL2020-205	Omitted	33
BL2020-206	Omitted	33
BL2020-207	Omitted	33
BL2020-208	Omitted	33
BL2020-209	Omitted	33
BL2020-210	Omitted	33
BL2020-211	Omitted	33
BL2020-212	Omitted	33
BL2020-213	Omitted	33
BL2020-214	Omitted	33
BL2020-215	Omitted	33
BL2020-216	Omitted	33
BL2020-217	Omitted	33
BL2020-218	Omitted	33
BL2020-219	Omitted	33
BL2020-220	Omitted	33
BL2020-221	Omitted	33
BL2020-222	Omitted	33
BL2020-223	Omitted	33
BL2020-224	Omitted	33
BL2020-225	Included	33
BL2020-226	Omitted	33
BL2020-227	Omitted	33
BL2020-228	Omitted	33
BL2020-229	Omitted	33
BL2020-230	Omitted	33
BL2020-231	Omitted	33
BL2020-232	Omitted	33
BL2020-233	Omitted	33

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2020-234	Omitted	33
BL2020-235	Omitted	33
BL2020-236	Included	33
BL2020-237	Omitted	33
BL2020-238	Omitted	33
BL2020-239	Omitted	33
BL2020-240	Omitted	33
BL2020-241	Omitted	33
BL2020-242	Omitted	33
BL2020-243	Omitted	33
BL2020-244	Omitted	33
BL2020-245	Omitted	33
BL2020-246	Omitted	33
BL2020-247	Omitted	33
BL2020-248	Omitted	33
BL2020-249	Omitted	33
BL2020-250	Omitted	33
BL2020-251	Omitted	33
BL2020-252	Omitted	33
BL2020-253	Omitted	33
BL2020-254	Omitted	33
BL2020-255	Omitted	33
BL2020-256	Omitted	33
BL2020-257	Omitted	33
BL2020-258	Omitted	33
BL2020-259	Omitted	33
BL2020-260	Omitted	33
BL2020-261	Omitted	33
BL2020-262	Omitted	33
BL2020-263	Omitted	33
BL2020-264	Omitted	33
BL2020-265	Omitted	33
BL2020-266	Omitted	33
BL2020-267	Omitted	33
BL2020-268	Omitted	33
BL2020-269	Omitted	33
BL2020-270	Omitted	33
BL2020-271	Omitted	33
BL2020-272	Omitted	33
BL2020-273	Omitted	33
BL2020-274	Omitted	33
BL2020-275	Omitted	33
BL2020-276	Omitted	33
BL2020-277	Included	33
BL2020-278	Omitted	33
BL2020-279	Omitted	33
BL2020-280	Omitted	33
BL2020-281	Omitted	33
BL2020-282	Omitted	33

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2020-283	Omitted	33
BL2020-284	Omitted	33
BL2020-285	Omitted	33
BL2020-286	Omitted	33
BL2020-287	Omitted	33
BL2020-288	Omitted	33
BL2020-289	Omitted	33
BL2020-290	Omitted	33
BL2020-291	Omitted	33
BL2020-292	Omitted	33
BL2020-293	Omitted	33
BL2020-294	Omitted	33
BL2020-295	Included	33
BL2020-296	Omitted	33
BL2020-297	Omitted	33
BL2020-298	Omitted	33
BL2020-299	Omitted	33
Supp. No. 34		
BL2019-48	Included	34
BL2019-78	Included	34
BL2020-147	Included	34
BL2020-187	Included	34
BL2020-188	Included	34
BL2020-288	Included	34
BL2020-300	Omitted	34
BL2020-301	Included	34
BL2020-302	Included	34
BL2020-303	Omitted	34
BL2020-304	Omitted	34
BL2020-305	Omitted	34
BL2020-306	Included	34
BL2020-307	Omitted	34
BL2020-308	Omitted	34
BL2020-309	Omitted	34
BL2020-310	Omitted	34
BL2020-311	Omitted	34
BL2020-312	Omitted	34
BL2020-313	Omitted	34
BL2020-314	Omitted	34
BL2020-315	Omitted	34
BL2020-316	Omitted	34
BL2020-317	Omitted	34
BL2020-318	Omitted	34
BL2020-319	Omitted	34
BL2020-320	Omitted	34
BL2020-321	Omitted	34
BL2020-322	Included	34
BL2020-323	Omitted	34
BL2020-324	Included	34

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2020-325	Omitted	34
BL2020-326	Omitted	34
BL2020-327	Omitted	34
BL2020-328	Omitted	34
BL2020-329	Omitted	34
BL2020-330	Omitted	34
BL2020-331	Omitted	34
BL2020-332	Omitted	34
BL2020-333	Included	34
BL2020-334	Included	34
BL2020-335	Included	34
BL2020-336	Omitted	34
BL2020-337	Omitted	34
BL2020-338	Omitted	34
BL2020-339	Omitted	34
BL2020-340	Omitted	34
BL2020-341	Omitted	34
BL2020-342	Omitted	34
BL2020-343	Omitted	34
BL2020-344	Omitted	34
BL2020-345	Omitted	34
BL2020-346	Omitted	34
BL2020-347	Omitted	34
BL2020-348	Omitted	34
BL2020-349	Omitted	34
BL2020-350	Omitted	34
BL2020-351	Omitted	34
BL2020-352	Omitted	34
BL2020-353	Omitted	34
BL2020-354	Omitted	34
BL2020-355	Omitted	34
BL2020-356	Omitted	34
BL2020-357	Omitted	34
BL2020-358	Omitted	34
BL2020-359	Omitted	34
BL2020-360	Omitted	34
BL2020-361	Omitted	34
BL2020-362	Omitted	34
BL2020-363	Omitted	34
BL2020-364	Omitted	34
BL2020-365	Omitted	34
BL2020-366	Omitted	34
BL2020-367	Omitted	34
BL2020-368	Omitted	34
BL2020-369	Omitted	34
BL2020-370	Omitted	34
BL2020-371	Omitted	34
BL2020-372	Omitted	34
BL2020-373	Omitted	34

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2020-374	Omitted	34
BL2020-375	Omitted	34
BL2020-376	Omitted	34
BL2020-377	Omitted	34
BL2020-378	Omitted	34
BL2020-379	Included	34
BL2020-380	Included	34
BL2020-381	Omitted	34
BL2020-382	Omitted	34
BL2020-383	Included	34
BL2020-384	Omitted	34
BL2020-385	Omitted	34
BL2020-386	Included	34
BL2020-387	Omitted	34
BL2020-388	Included	34
BL2020-389	Omitted	34
BL2020-390	Omitted	34
BL2020-391	Omitted	34
BL2020-392	Omitted	34
BL2020-393	Omitted	34
BL2020-394	Omitted	34
BL2020-395	Omitted	34
BL2020-396	Omitted	34
BL2020-397	Omitted	34
BL2020-398	Omitted	34
BL2020-399	Omitted	34
BL2020-400	Omitted	34
BL2020-401	Included	34
BL2020-402	Included	34
BL2020-403	Included	34
BL2020-404	Omitted	34
BL2020-405	Omitted	34
BL2020-406	Omitted	34
BL2020-407	Included	34
BL2020-408	Omitted	34
BL2020-409	Omitted	34
BL2020-410	Omitted	34
BL2020-411	Omitted	34
BL2020-412	Omitted	34
BL2020-413	Omitted	34
BL2020-414	Omitted	34
BL2020-415	Omitted	34
BL2020-416	Omitted	34
BL2020-417	Omitted	34
BL2020-418	Omitted	34
BL2020-419	Omitted	34
BL2020-420	Omitted	34
BL2020-421	Included	34

Ord. No./Res. No.	Included/ Omitted	Supp. No.
Supp. No. 35		
BL2019-79	Included	35
BL2020-300	Included	35
BL2020-405	Included	35
BL2020-422	Included	35
BL2020-423	Included	35
BL2020-424	Included	35
BL2020-425	Omitted	35
BL2020-426	Omitted	35
BL2020-427	Omitted	35
BL2020-428	Omitted	35
BL2020-429	Omitted	35
BL2020-430	Omitted	35
BL2020-431	Omitted	35
BL2020-432	Omitted	35
BL2020-433	Omitted	35
BL2020-434	Omitted	35
BL2020-435	Omitted	35
BL2020-436	Omitted	35
BL2020-437	Omitted	35
BL2020-438	Omitted	35
BL2020-439	Omitted	35
BL2020-440	Omitted	35
BL2020-441	Omitted	35
BL2020-442	Omitted	35
BL2020-443	Omitted	35
BL2020-444	Omitted	35
BL2020-445	Omitted	35
BL2020-446	Omitted	35
BL2020-447	Omitted	35
BL2020-448	Omitted	35
BL2020-449	Included	35
BL2020-450	Omitted	35
BL2020-451	Omitted	35
BL2020-452	Omitted	35
BL2020-453	Omitted	35
BL2020-454	Included	35
BL2020-455	Included	35
BL2020-456	Included	35
BL2020-457	Included	35
BL2020-458	Included	35
BL2020-459	Included	35
BL2020-460	Omitted	35
BL2020-461	Omitted	35
BL2020-462	Omitted	35
BL2020-463	Omitted	35
BL2020-464	Omitted	35
BL2020-465	Omitted	35
BL2020-466	Omitted	35

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2020-467	Omitted	35
BL2020-468	Omitted	35
BL2020-469	Omitted	35
BL2020-470	Omitted	35
BL2020-471	Omitted	35
BL2020-472	Omitted	35
BL2020-473	Omitted	35
BL2020-474	Omitted	35
BL2020-475	Omitted	35
BL2020-476	Omitted	35
BL2020-477	Omitted	35
BL2020-478	Omitted	35
BL2020-479	Omitted	35
BL2020-480	Omitted	35
BL2020-481	Omitted	35
BL2020-482	Omitted	35
BL2020-483	Omitted	35
BL2020-484	Omitted	35
BL2020-485	Omitted	35
BL2020-486	Omitted	35
BL2020-487	Omitted	35
BL2020-488	Omitted	35
BL2020-489	Omitted	35
BL2020-490	Omitted	35
BL2020-491	Omitted	35
BL2020-492	Omitted	35
BL2020-493	Omitted	35
BL2020-494	Omitted	35
BL2020-495	Included	35
BL2020-496	Omitted	35
BL2020-497	Omitted	35
BL2020-498	Omitted	35
BL2020-499	Omitted	35
BL2020-500	Omitted	35
BL2020-501	Omitted	35
BL2020-502	Omitted	35
BL2020-503	Included	35
BL2020-504	Omitted	35
BL2020-505	Omitted	35
BL2020-506	Omitted	35
BL2020-507	Omitted	35
BL2020-508	Omitted	35
BL2020-509	Omitted	35
BL2020-510	Omitted	35
BL2020-511	Omitted	35
BL2020-512	Omitted	35
BL2020-513	Omitted	35
BL2020-514	Omitted	35
BL2020-515	Omitted	35

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2020-516	Omitted	35
BL2020-517	Omitted	35
BL2020-518	Omitted	35
BL2020-519	Omitted	35
BL2020-520	Omitted	35
BL2020-521	Omitted	35
BL2020-522	Omitted	35
BL2020-523	Omitted	35
BL2020-524	Omitted	35
BL2020-525	Omitted	35
BL2020-526	Omitted	35
BL2020-527	Omitted	35
BL2020-528	Omitted	35
BL2020-529	Omitted	35
BL2020-530	Omitted	35
BL2020-531	Omitted	35
BL2020-532	Omitted	35
BL2020-533	Included	35
BL2020-534	Omitted	35
BL2020-535	Omitted	35
BL2020-536	Omitted	35
BL2020-537	Omitted	35
BL2020-538	Omitted	35
BL2020-539	Omitted	35
BL2020-540	Omitted	35
BL2020-541	Omitted	35
BL2020-542	Omitted	35
BL2020-543	Omitted	35
BL2020-544	Omitted	35
BL2020-545	Omitted	35
BL2020-546	Omitted	35
BL2020-547	Omitted	35
BL2020-548	Omitted	35
BL2020-549	Omitted	35
Supp. No. 36		
BL2020-534	Included	36
BL2020-550	Included	36
BL2020-551	Omitted	36
BL2020-552	Omitted	36
BL2020-553	Omitted	36
BL2020-554	Omitted	36
BL2020-555	Omitted	36
BL2020-556	Omitted	36
BL2020-557	Omitted	36
BL2020-558	Omitted	36
BL2020-559	Omitted	36
BL2020-560	Omitted	36
BL2020-561	Omitted	36
BL2020-562	Omitted	36

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2020-563	Omitted	36
BL2020-564	Omitted	36
BL2020-565	Omitted	36
BL2020-566	Omitted	36
BL2020-567	Omitted	36
BL2020-568	Omitted	36
BL2020-569	Omitted	36
BL2020-570	Omitted	36
BL2020-571	Omitted	36
BL2020-572	Omitted	36
BL2020-573	Omitted	36
BL2020-574	Omitted	36
BL2020-575	Omitted	36
BL2020-576	Omitted	36
BL2020-577	Omitted	36
BL2020-578	Omitted	36
BL2020-579	Omitted	36
BL2020-580	Omitted	36
BL2020-581	Omitted	36
BL2020-582	Omitted	36
BL2020-583	Omitted	36
BL2020-584	Omitted	36
BL2020-585	Omitted	36
BL2020-586	Omitted	36
BL2020-587	Omitted	36
BL2020-588	Omitted	36
BL2020-589	Omitted	36
BL2020-590	Omitted	36
BL2020-591	Omitted	36
BL2020-592	Omitted	36
BL2021-593	Omitted	36
BL2021-594	Included	36
BL2021-595	Omitted	36
BL2021-596	Included	36
BL2021-597	Omitted	36
BL2021-598	Omitted	36
BL2021-599	Omitted	36
BL2021-600	Omitted	36
BL2021-601	Omitted	36
BL2021-602	Omitted	36
BL2021-603	Omitted	36
BL2021-604	Omitted	36
BL2021-605	Omitted	36
BL2021-606	Omitted	36
BL2021-607	Omitted	36
BL2021-608	Omitted	36
BL2021-609	Omitted	36
BL2021-610	Omitted	36
BL2021-611	Omitted	36

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2021-612	Omitted	36
BL2021-613	Omitted	36
BL2021-614	Omitted	36
BL2021-615	Omitted	36
BL2021-616	Omitted	36
BL2021-617	Omitted	36
BL2021-618	Omitted	36
BL2021-619	Included	36
BL2021-620	Omitted	36
BL2021-621	Omitted	36
BL2021-622	Omitted	36
BL2021-623	Omitted	36
BL2021-624	Omitted	36
BL2021-625	Omitted	36
BL2021-626	Omitted	36
BL2021-627	Omitted	36
BL2021-628	Omitted	36
BL2021-629	Omitted	36
BL2021-630	Omitted	36
BL2021-631	Omitted	36
BL2021-632	Omitted	36
BL2021-633	Omitted	36
BL2021-634	Omitted	36
BL2021-635	Omitted	36
BL2021-636	Omitted	36
BL2021-637	Omitted	36
BL2021-638	Omitted	36
BL2021-639	Omitted	36
BL2021-640	Omitted	36
BL2021-641	Omitted	36
BL2021-642	Omitted	36
BL2021-643	Omitted	36
BL2021-644	Omitted	36
BL2021-645	Omitted	36
BL2021-646	Omitted	36
BL2021-647	Omitted	36
BL2021-648	Omitted	36
BL2021-649	Omitted	36
BL2021-650	Omitted	36
BL2021-651	Omitted	36
BL2021-652	Omitted	36
BL2021-653	Omitted	36
Supp. No. 37		
BL2020-387	Included	37
BL2020-492	Included	37
BL2020-493	Included	37
BL2020-535	Included	37
BL2021-620	Included	37
BL2020-646	Included	37

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2021-654	Omitted	37
BL2021-655	Omitted	37
BL2021-656	Omitted	37
BL2021-657	Included	37
BL2021-658	Included	37
BL2021-659	Omitted	37
BL2021-660	Omitted	37
BL2021-661	Omitted	37
BL2021-662	Omitted	37
BL2021-663	Omitted	37
BL2021-664	Omitted	37
BL2021-665	Omitted	37
BL2021-666	Omitted	37
BL2021-667	Omitted	37
BL2021-668	Omitted	37
BL2021-669	Omitted	37
BL2021-670	Omitted	37
BL2021-671	Omitted	37
BL2021-672	Omitted	37
BL2021-673	Omitted	37
BL2021-674	Omitted	37
BL2021-675	Included	37
BL2021-676	Included	37
BL2021-677	Included	37
BL2021-678	Included	37
BL2021-679	Included	37
BL2021-680	Included	37
BL2021-681	Omitted	37
BL2021-682	Omitted	37
BL2021-683	Omitted	37
BL2021-684	Omitted	37
BL2021-685	Omitted	37
BL2021-686	Omitted	37
BL2021-687	Omitted	37
BL2021-688	Omitted	37
BL2021-689	Included	37
BL2021-690	Omitted	37
BL2021-691	Omitted	37
BL2021-692	Omitted	37
BL2021-693	Omitted	37
BL2021-694	Omitted	37
BL2021-695	Omitted	37
BL2021-696	Omitted	37
BL2021-697	Omitted	37
BL2021-698	Omitted	37
BL2021-699	Omitted	37
BL2021-700	Omitted	37
BL2021-701	Omitted	37
BL2021-702	Omitted	37

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2021-703	Omitted	37
BL2021-704	Omitted	37
BL2021-705	Omitted	37
BL2021-706	Omitted	37
BL2021-707	Omitted	37
BL2021-708	Omitted	37
BL2021-709	Omitted	37
BL2021-710	Omitted	37
BL2021-711	Omitted	37
BL2021-712	Omitted	37
BL2021-713	Omitted	37
BL2021-714	Omitted	37
BL2021-715	Omitted	37
BL2021-716	Omitted	37
BL2021-717	Included	37
BL2021-718	Included	37
BL2021-719	Omitted	37
BL2021-720	Omitted	37
BL2021-721	Omitted	37
BL2021-722	Omitted	37
BL2021-723	Omitted	37
BL2021-724	Omitted	37
BL2021-725	Omitted	37
BL2021-726	Omitted	37
BL2021-727	Omitted	37
BL2021-728	Omitted	37
BL2021-729	Omitted	37
BL2021-730	Omitted	37
BL2021-731	Omitted	37
BL2021-732	Omitted	37
BL2021-733	Omitted	37
BL2021-734	Omitted	37
BL2021-735	Omitted	37
BL2021-736	Omitted	37
BL2021-737	Omitted	37
BL2021-738	Included	37
BL2021-739	Omitted	37
BL2021-740	Omitted	37
BL2021-741	Omitted	37
BL2021-742	Omitted	37
BL2021-743	Omitted	37
BL2021-744	Omitted	37
BL2021-745	Omitted	37
BL2021-746	Omitted	37
BL2021-747	Omitted	37
BL2021-748	Omitted	37
BL2021-749	Omitted	37

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2021-750	Omitted	37
BL2021-751	Omitted	37
BL2021-752	Omitted	37
Supp. No. 38		
BL2019-3	Included	38
BL2019-49	Included	38
BL2020-316	Included	38
BL2021-721	Included	38
BL2021-722	Included	38
BL2021-725	Included	38
BL2021-753	Included	38
BL2021-754	Omitted	38
BL2021-755	Omitted	38
BL2021-756	Omitted	38
BL2021-757	Omitted	38
BL2021-758	Omitted	38
BL2021-759	Omitted	38
BL2021-760	Omitted	38
BL2021-761	Omitted	38
BL2021-762	Omitted	38
BL2021-763	Omitted	38
BL2021-764	Omitted	38
BL2021-765	Omitted	38
BL2021-766	Omitted	38
BL2021-767	Omitted	38
BL2021-768	Omitted	38
BL2021-769	Omitted	38
BL2021-770	Omitted	38
BL2021-771	Omitted	38
BL2021-772	Omitted	38
BL2021-773	Omitted	38
BL2021-774	Omitted	38
BL2021-775	Omitted	38
BL2021-776	Omitted	38
BL2021-777	Omitted	38
BL2021-778	Omitted	38
BL2021-779	Omitted	38
BL2021-780	Omitted	38
BL2021-781	Included	38
BL2021-782	Included	38
BL2021-783	Included	38
BL2021-784	Omitted	38
BL2021-785	Omitted	38
BL2021-786	Omitted	38
BL2021-787	Omitted	38
BL2021-788	Omitted	38
BL2021-789	Omitted	38
BL2021-790	Omitted	38
BL2021-791	Omitted	38

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2021-792	Included	38
BL2021-793	Included	38
BL2021-794	Included	38
BL2021-795	Included	38
BL2021-796	Included	38
BL2021-797	Omitted	38
BL2021-798	Included	38
BL2021-799	Omitted	38
BL2021-800	Included	38
BL2021-801	Omitted	38
BL2021-802	Omitted	38
BL2021-803	Omitted	38
BL2021-804	Omitted	38
BL2021-805	Omitted	38
BL2021-806	Omitted	38
BL2021-807	Omitted	38
BL2021-808	Omitted	38
BL2021-809	Omitted	38
BL2021-810	Omitted	38
BL2021-811	Omitted	38
BL2021-812	Omitted	38
BL2021-813	Omitted	38
BL2021-814	Omitted	38
BL2021-815	Omitted	38
BL2021-816	Omitted	38
BL2021-817	Omitted	38
BL2021-818	Omitted	38
BL2021-819	Omitted	38
BL2021-820	Omitted	38
BL2021-821	Omitted	38
BL2021-822	Omitted	38
BL2021-823	Omitted	38
BL2021-824	Omitted	38
BL2021-825	Omitted	38
BL2021-826	Omitted	38
BL2021-827	Omitted	38
BL2021-828	Omitted	38
BL2021-829	Included	38
BL2021-830	Included	38
BL2021-831	Omitted	38
BL2021-832	Omitted	38
BL2021-833	Omitted	38
BL2021-834	Omitted	38
BL2021-835	Omitted	38
BL2021-836	Omitted	38
BL2021-837	Omitted	38
BL2021-838	Omitted	38
BL2021-839	Omitted	38
BL2021-840	Omitted	38

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2021-841	Omitted	38
BL2021-842	Omitted	38
BL2021-843	Omitted	38
BL2021-844	Omitted	38
BL2021-845	Omitted	38
BL2021-846	Omitted	38
BL2021-847	Omitted	38
BL2021-848	Omitted	38
BL2021-849	Omitted	38
BL2021-850	Omitted	38
BL2021-851	Omitted	38
BL2021-852	Omitted	38
BL2021-853	Omitted	38
BL2021-854	Omitted	38
BL2021-855	Omitted	38
BL2021-856	Omitted	38
BL2021-857	Omitted	38
BL2021-858	Omitted	38
BL2021-859	Omitted	38
BL2021-860	Omitted	38
BL2021-861	Omitted	38
BL2021-862	Omitted	38
BL2021-863	Omitted	38
BL2021-864	Included	38
BL2021-865	Omitted	38
BL2021-866	Omitted	38
BL2021-867	Omitted	38
BL2021-868	Omitted	38
BL2021-869	Omitted	38
BL2021-870	Omitted	38
BL2021-871	Omitted	38
BL2021-872	Omitted	38
BL2021-873	Omitted	38
BL2021-874	Omitted	38
BL2021-875	Omitted	38
BL2021-876	Omitted	38
BL2021-877	Omitted	38
BL2021-878	Omitted	38
BL2021-879	Omitted	38
BL2021-880	Omitted	38
BL2021-881	Omitted	38
BL2021-882	Omitted	38
BL2021-883	Omitted	38
Supp. No. 39		
BL2021-784	Included	39
BL2021-797	Included	39
BL2021-842	Included	39
BL2021-843	Included	39
BL2021-844	Included	39

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2021-867	Included	39
BL2021-868	Included	39
BL2021-869	Included	39
BL2021-884	Omitted	39
BL2021-885	Omitted	39
BL2021-886	Omitted	39
BL2021-887	Omitted	39
BL2021-888	Omitted	39
BL2021-889	Omitted	39
BL2021-890	Omitted	39
BL2021-891	Omitted	39
BL2021-892	Omitted	39
BL2021-893	Omitted	39
BL2021-894	Omitted	39
BL2021-895	Omitted	39
BL2021-896	Omitted	39
BL2021-897	Omitted	39
BL2021-898	Omitted	39
BL2021-899	Omitted	39
BL2021-900	Omitted	39
BL2021-901	Omitted	39
BL2021-902	Omitted	39
BL2021-903	Omitted	39
BL2021-904	Omitted	39
BL2021-905	Omitted	39
BL2021-906	Omitted	39
BL2021-907	Omitted	39
BL2021-908	Omitted	39
BL2021-909	Omitted	39
BL2021-910	Omitted	39
BL2021-911	Included	39
BL2021-912	Omitted	39
BL2021-913	Omitted	39
BL2021-914	Omitted	39
BL2021-915	Omitted	39
BL2021-916	Omitted	39
BL2021-917	Omitted	39
BL2021-918	Omitted	39
BL2021-919	Omitted	39
BL2021-920	Omitted	39
BL2021-921	Included	39
BL2021-922	Omitted	39
BL2021-923	Included	39
BL2021-924	Omitted	39
BL2021-925	Omitted	39
BL2021-926	Omitted	39
BL2021-927	Omitted	39
BL2021-928	Omitted	39
BL2021-929	Omitted	39

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2021-930	Omitted	39
BL2021-931	Omitted	39
BL2021-932	Omitted	39
BL2021-933	Omitted	39
BL2021-934	Omitted	39
BL2021-935	Omitted	39
BL2021-936	Omitted	39
BL2021-937	Omitted	39
BL2021-938	Omitted	39
BL2021-939	Omitted	39
BL2021-940	Omitted	39
BL2021-941	Omitted	39
BL2021-942	Omitted	39
BL2021-943	Omitted	39
BL2021-944	Omitted	39
BL2021-945	Omitted	39
BL2021-946	Omitted	39
BL2021-947	Omitted	39
BL2021-948	Omitted	39
BL2021-949	Omitted	39
BL2021-950	Omitted	39
BL2021-951	Omitted	39
BL2021-952	Omitted	39
BL2021-953	Omitted	39
BL2021-954	Omitted	39
BL2021-955	Omitted	39
BL2021-956	Omitted	39
BL2021-957	Omitted	39
BL2021-958	Omitted	39
BL2021-959	Omitted	39
BL2021-960	Omitted	39
BL2021-961	Included	39
BL2021-962	Omitted	39
BL2021-963	Omitted	39
BL2021-964	Omitted	39
BL2021-965	Omitted	39
BL2021-966	Omitted	39
BL2021-967	Omitted	39
BL2021-968	Omitted	39
BL2021-969	Omitted	39
BL2021-970	Included	39
BL2021-971	Omitted	39
BL2021-972	Included	39
BL2021-973	Omitted	39
BL2021-974	Included	39
BL2021-975	Included	39
BL2021-976	Omitted	39
BL2021-977	Omitted	39
BL2021-978	Included	39

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2021-979	Omitted	39
BL2021-980	Omitted	39
BL2021-981	Omitted	39
BL2021-982	Omitted	39
BL2021-983	Omitted	39
BL2021-984	Omitted	39
BL2021-985	Omitted	39
BL2021-986	Omitted	39
BL2021-987	Omitted	39
BL2021-988	Omitted	39
BL2021-989	Omitted	39
BL2021-990	Omitted	39
BL2021-991	Omitted	39
BL2021-992	Omitted	39
BL2021-993	Omitted	39
BL2021-994	Omitted	39
BL2021-995	Omitted	39
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BL2021-997	Omitted	39
BL2021-998	Omitted	39
BL2021-999	Omitted	39
BL2021-1000	Omitted	39
BL2021-1001	Omitted	39
BL2021-1002	Omitted	39
BL2021-1003	Omitted	39
BL2021-1004	Omitted	39
BL2021-1005	Omitted	39
BL2021-1006	Omitted	39
BL2021-1007	Omitted	39
BL2021-1008	Omitted	39
BL2021-1009	Omitted	39
BL2021-1010	Omitted	39
BL2021-1011	Included	39
BL2021-1012	Included	39
BL2021-1013	Omitted	39
BL2021-1014	Omitted	39
BL2021-1015	Omitted	39
BL2021-1016	Omitted	39
BL2021-1017	Omitted	39
BL2021-1018	Omitted	39
BL2021-1019	Omitted	39
BL2021-1020	Omitted	39
BL2021-1021	Omitted	39
BL2021-1022	Included	39
BL2021-1023	Omitted	39
BL2021-1024	Omitted	39
BL2021-1025	Omitted	39
BL2021-1026	Omitted	39
BL2021-1027	Omitted	39

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2021-1028	Omitted	39
BL2021-1029	Omitted	39
BL2021-1030	Omitted	39
BL2021-1031	Omitted	39
BL2021-1032	Omitted	39
BL2021-1033	Omitted	39
BL2021-1034	Omitted	39
BL2021-1035	Omitted	39
BL2021-1036	Omitted	39
BL2021-1037	Omitted	39
BL2021-1038	Omitted	39
BL2021-1039	Omitted	39
BL2021-1040	Omitted	39
BL2021-1041	Omitted	39
BL2021-1042	Omitted	39
BL2021-1043	Omitted	39
BL2021-1044	Omitted	39
BL2021-1045	Omitted	39
BL2021-1046	Omitted	39
BL2021-1047	Omitted	39
BL2021-1048	Omitted	39
BL2021-1049	Included	39
BL2021-1050	Included	39
BL2021-1051	Omitted	39
BL2021-1052	Included	39
BL2021-1053	Omitted	39
BL2021-1054	Omitted	39
BL2021-1055	Omitted	39
BL2021-1056	Omitted	39
BL2022-1057	Omitted	39
BL2022-1058	Omitted	39
BL2022-1059	Omitted	39
BL2022-1060	Omitted	39
BL2022-1061	Omitted	39
BL2022-1062	Omitted	39
BL2022-1063	Omitted	39
BL2022-1064	Omitted	39
BL2022-1065	Omitted	39
BL2022-1066	Omitted	39
BL2022-1067	Omitted	39
BL2022-1068	Omitted	39
BL2022-1069	Omitted	39
BL2022-1070	Omitted	39
BL2022-1071	Omitted	39
BL2022-1072	Omitted	39
BL2022-1073	Omitted	39
BL2022-1074	Omitted	39
BL2022-1075	Omitted	39
BL2022-1076	Omitted	39

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1077	Omitted	39
BL2022-1078	Omitted	39
BL2022-1079	Omitted	39
BL2022-1080	Omitted	39
BL2022-1081	Omitted	39
BL2022-1082	Omitted	39
BL2022-1083	Omitted	39
BL2022-1084	Omitted	39
BL2022-1085	Omitted	39
BL2022-1086	Omitted	39
BL2022-1087	Omitted	39
BL2022-1088	Omitted	39
BL2022-1089	Omitted	39
BL2022-1090	Omitted	39
BL2022-1091	Omitted	39
BL2022-1092	Omitted	39
BL2022-1093	Omitted	39
BL2022-1094	Omitted	39
BL2022-1095	Omitted	39
BL2022-1096	Omitted	39
BL2022-1097	Omitted	39
BL2022-1098	Omitted	39
BL2022-1099	Omitted	39
BL2022-1100	Omitted	39
BL2022-1101	Omitted	39
BL2022-1102	Omitted	39
BL2022-1103	Omitted	39
BL2022-1104	Omitted	39
BL2022-1105	Omitted	39
BL2022-1106	Omitted	39
BL2022-1107	Omitted	39
BL2022-1108	Omitted	39
BL2022-1109	Omitted	39
BL2022-1110	Omitted	39
BL2022-1111	Omitted	39
BL2022-1112	Omitted	39
Supp. No. 40		
BL2021-621	Included	40
BL2022-1073	Included	40
BL2022-1088	Included	40
BL2022-1089	Included	40
BL2022-1113	Included	40
BL2022-1114	Included	40
BL2022-1115	Omitted	40
BL2022-1116	Included	40
BL2022-1117	Omitted	40
BL2022-1118	Omitted	40
BL2022-1119	Omitted	40
BL2022-1120	Omitted	40

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1121	Included	40
BL2022-1122	Included	40
BL2022-1123	Omitted	40
BL2022-1124	Omitted	40
BL2022-1125	Omitted	40
BL2022-1126	Omitted	40
BL2022-1127	Omitted	40
BL2022-1128	Omitted	40
BL2022-1129	Omitted	40
BL2022-1130	Omitted	40
BL2022-1131	Omitted	40
BL2022-1132	Omitted	40
BL2022-1133	Omitted	40
BL2022-1134	Omitted	40
BL2022-1135	Omitted	40
BL2022-1136	Omitted	40
BL2022-1137	Omitted	40
BL2022-1138	Omitted	40
BL2022-1139	Omitted	40
BL2022-1140	Omitted	40
BL2022-1141	Omitted	40
BL2022-1142	Omitted	40
BL2022-1143	Omitted	40
BL2022-1144	Omitted	40
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BL2022-1146	Omitted	40
BL2022-1147	Omitted	40
BL2022-1148	Omitted	40
BL2022-1149	Omitted	40
BL2022-1150	Omitted	40
BL2022-1151	Omitted	40
BL2022-1152	Omitted	40
BL2022-1153	Omitted	40
BL2022-1154	Omitted	40
BL2022-1155	Omitted	40
BL2022-1156	Omitted	40
BL2022-1157	Omitted	40
BL2022-1158	Omitted	40
BL2022-1159	Omitted	40
BL2022-1160	Omitted	40
BL2022-1161	Omitted	40
BL2022-1162	Omitted	40
BL2022-1163	Omitted	40
BL2022-1164	Omitted	40
BL2022-1165	Included	40
BL2022-1166	Omitted	40
BL2022-1167	Omitted	40
BL2022-1168	Omitted	40
BL2022-1169	Omitted	40

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1170	Omitted	40
BL2022-1171	Omitted	40
BL2022-1172	Omitted	40
BL2022-1173	Omitted	40
BL2022-1174	Omitted	40
BL2022-1175	Included	40
BL2022-1176	Omitted	40
BL2022-1177	Omitted	40
BL2022-1178	Omitted	40
BL2022-1179	Omitted	40
BL2022-1180	Omitted	40
BL2022-1181	Omitted	40
BL2022-1182	Omitted	40
BL2022-1183	Omitted	40
BL2022-1184	Omitted	40
BL2022-1185	Omitted	40
BL2022-1186	Omitted	40
BL2022-1187	Omitted	40
BL2022-1188	Omitted	40
BL2022-1189	Omitted	40
BL2022-1190	Omitted	40
BL2022-1191	Omitted	40
BL2022-1192	Omitted	40
BL2022-1193	Omitted	40
BL2022-1194	Omitted	40
BL2022-1195	Omitted	40
BL2022-1196	Omitted	40
BL2022-1197	Omitted	40
BL2022-1198	Omitted	40
BL2022-1199	Omitted	40
BL2022-1200	Omitted	40
BL2022-1201	Omitted	40
BL2022-1202	Omitted	40
BL2022-1203	Omitted	40
BL2022-1204	Omitted	40
BL2022-1205	Omitted	40
BL2022-1206	Omitted	40
BL2022-1207	Omitted	40
BL2022-1208	Omitted	40
BL2022-1209	Omitted	40
BL2022-1210	Omitted	40
BL2022-1211	Omitted	40
BL2022-1212	Omitted	40
BL2022-1213	Included	40
BL2022-1214	Included	40
BL2022-1215	Included	40
BL2022-1216	Omitted	40
BL2022-1217	Omitted	40
BL2022-1218	Omitted	40

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1219	Omitted	40
BL2022-1220	Omitted	40
BL2022-1221	Omitted	40
BL2022-1222	Omitted	40
BL2022-1223	Omitted	40
BL2022-1224	Omitted	40
BL2022-1225	Omitted	40
BL2022-1226	Omitted	40
BL2022-1227	Omitted	40
BL2022-1228	Omitted	40
BL2022-1229	Omitted	40
Supp. No. 41		
RS2022-1475	Included	41
BL2021-971	Included	41
BL2022-1115	Included	41
BL2022-1164	Included	41
BL2022-1216	Included	41
BL2022-1230	Omitted	41
BL2022-1231	Omitted	41
BL2022-1232	Omitted	41
BL2022-1233	Omitted	41
BL2022-1234	Omitted	41
BL2022-1235	Omitted	41
BL2022-1236	Omitted	41
BL2022-1237	Omitted	41
BL2022-1238	Omitted	41
BL2022-1239	Omitted	41
BL2022-1240	Omitted	41
BL2022-1241	Omitted	41
BL2022-1242	Omitted	41
BL2022-1243	Omitted	41
BL2022-1244	Omitted	41
BL2022-1245	Omitted	41
BL2022-1246	Omitted	41
BL2022-1247	Omitted	41
BL2022-1248	Omitted	41
BL2022-1249	Omitted	41
BL2022-1250	Omitted	41
BL2022-1251	Included	41
BL2022-1252	Omitted	41
BL2022-1253	Omitted	41
BL2022-1254	Omitted	41
BL2022-1255	Omitted	41
BL2022-1256	Omitted	41
BL2022-1257	Omitted	41
BL2022-1258	Omitted	41
BL2022-1259	Omitted	41
BL2022-1260	Omitted	41
BL2022-1261	Omitted	41

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1262	Omitted	41
BL2022-1263	Omitted	41
BL2022-1264	Omitted	41
BL2022-1265	Omitted	41
BL2022-1266	Omitted	41
BL2022-1267	Omitted	41
BL2022-1268	Omitted	41
BL2022-1269	Included	41
BL2022-1270	Included	41
BL2022-1271	Omitted	41
BL2022-1272	Omitted	41
BL2022-1273	Omitted	41
BL2022-1274	Omitted	41
BL2022-1275	Omitted	41
BL2022-1276	Omitted	41
BL2022-1277	Omitted	41
BL2022-1278	Omitted	41
BL2022-1279	Omitted	41
BL2022-1280	Omitted	41
BL2022-1281	Omitted	41
BL2022-1282	Omitted	41
BL2022-1283	Omitted	41
BL2022-1284	Omitted	41
BL2022-1285	Omitted	41
BL2022-1286	Omitted	41
BL2022-1287	Omitted	41
BL2022-1288	Omitted	41
BL2022-1289	Omitted	41
BL2022-1290	Omitted	41
BL2022-1291	Omitted	41
BL2022-1292	Omitted	41
BL2022-1293	Omitted	41
BL2022-1294	Omitted	41
BL2022-1295	Omitted	41
BL2022-1296	Omitted	41
BL2022-1297	Omitted	41
BL2022-1298	Omitted	41
BL2022-1299	Omitted	41
BL2022-1300	Omitted	41
BL2022-1301	Omitted	41
BL2022-1302	Omitted	41
BL2022-1303	Omitted	41
BL2022-1304	Omitted	41
BL2022-1305	Omitted	41
BL2022-1306	Omitted	41
BL2022-1307	Omitted	41
BL2022-1308	Omitted	41
BL2022-1309	Omitted	41
BL2022-1310	Omitted	41

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1311	Omitted	41
BL2022-1312	Omitted	41
BL2022-1313	Omitted	41
BL2022-1314	Omitted	41
BL2022-1315	Omitted	41
BL2022-1316	Omitted	41
BL2022-1317	Omitted	41
BL2022-1318	Omitted	41
BL2022-1319	Omitted	41
BL2022-1320	Omitted	41
BL2022-1321	Omitted	41
BL2022-1322	Omitted	41
BL2022-1323	Omitted	41
BL2022-1324	Omitted	41
BL2022-1325	Omitted	41
BL2022-1326	Omitted	41
BL2022-1327	Omitted	41
BL2022-1328	Omitted	41
BL2022-1329	Omitted	41
BL2022-1330	Omitted	41
BL2022-1331	Omitted	41
BL2022-1332	Omitted	41
BL2022-1333	Included	41
BL2022-1334	Omitted	41
BL2022-1335	Omitted	41
BL2022-1336	Omitted	41
BL2022-1337	Omitted	41
BL2022-1338	Omitted	41
BL2022-1339	Omitted	41
BL2022-1340	Omitted	41
BL2022-1341	Omitted	41
BL2022-1342	Omitted	41
BL2022-1343	Included	41
BL2022-1344	Omitted	41
BL2022-1345	Included	41
BL2022-1346	Omitted	41
BL2022-1347	Omitted	41
BL2022-1348	Included	41
BL2022-1349	Omitted	41
BL2022-1350	Omitted	41
BL2022-1351	Omitted	41
BL2022-1352	Omitted	41
BL2022-1353	Omitted	41
BL2022-1354	Omitted	41
BL2022-1355	Omitted	41
BL2022-1356	Omitted	41
BL2022-1357	Omitted	41
BL2022-1358	Omitted	41
BL2022-1359	Omitted	41

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1360	Omitted	41
BL2022-1361	Omitted	41
BL2022-1362	Omitted	41
BL2022-1363	Omitted	41
BL2022-1364	Omitted	41
BL2022-1365	Omitted	41
BL2022-1366	Omitted	41
BL2022-1367	Omitted	41
BL2022-1368	Omitted	41
BL2022-1369	Omitted	41
BL2022-1370	Omitted	41
BL2022-1371	Omitted	41
BL2022-1372	Included	41
BL2022-1373	Included	41
BL2022-1374	Included	41
BL2022-1375	Omitted	41
BL2022-1376	Omitted	41
BL2022-1377	Omitted	41
BL2022-1378	Omitted	41
BL2022-1379	Omitted	41
Supp. No. 42		
BL2022-1328	Included	42
BL2022-1346	Included	42
BL2022-1380	Included	42
RS2022-1380	Included	42
BL2022-1381	Included	42
BL2022-1382	Included	42
BL2022-1383	Included	42
BL2022-1384	Omitted	42
BL2022-1385	Included	42
BL2022-1386	Omitted	42
BL2022-1387	Omitted	42
BL2022-1388	Omitted	42
BL2022-1389	Omitted	42
BL2022-1390	Omitted	42
BL2022-1391	Omitted	42
BL2022-1392	Omitted	42
BL2022-1393	Omitted	42
BL2022-1394	Omitted	42
BL2022-1395	Omitted	42
BL2022-1396	Omitted	42
BL2022-1397	Omitted	42
BL2022-1398	Omitted	42
BL2022-1399	Omitted	42
BL2022-1400	Omitted	42
BL2022-1401	Omitted	42
BL2022-1402	Omitted	42
BL2022-1403	Omitted	42
BL2022-1404	Omitted	42

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1405	Included	42
BL2022-1406	Omitted	42
BL2022-1407	Omitted	42
BL2022-1408	Omitted	42
BL2022-1409	Omitted	42
BL2022-1410	Omitted	42
BL2022-1411	Omitted	42
BL2022-1412	Included	42
BL2022-1413	Omitted	42
BL2022-1414	Omitted	42
BL2022-1415	Omitted	42
BL2022-1416	Omitted	42
BL2022-1417	Omitted	42
BL2022-1418	Omitted	42
BL2022-1419	Omitted	42
BL2022-1420	Omitted	42
BL2022-1421	Omitted	42
BL2022-1422	Omitted	42
BL2022-1423	Omitted	42
BL2022-1424	Omitted	42
BL2022-1425	Omitted	42
BL2022-1426	Omitted	42
BL2022-1427	Omitted	42
BL2022-1428	Omitted	42
BL2022-1429	Omitted	42
BL2022-1430	Omitted	42
BL2022-1431	Omitted	42
BL2022-1432	Omitted	42
BL2022-1433	Omitted	42
BL2022-1434	Omitted	42
BL2022-1435	Omitted	42
BL2022-1436	Omitted	42
BL2022-1437	Omitted	42
BL2022-1438	Omitted	42
BL2022-1439	Omitted	42
BL2022-1440	Omitted	42
BL2022-1441	Omitted	42
BL2022-1442	Omitted	42
BL2022-1443	Omitted	42
BL2022-1444	Omitted	42
BL2022-1445	Omitted	42
BL2022-1446	Omitted	42
BL2022-1447	Omitted	42
BL2022-1448	Omitted	42
BL2022-1449	Omitted	42
BL2022-1450	Omitted	42
BL2022-1451	Omitted	42
BL2022-1452	Omitted	42
BL2022-1453	Omitted	42

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1454	Omitted	42
BL2022-1455	Omitted	42
BL2022-1456	Omitted	42
BL2022-1457	Omitted	42
BL2022-1458	Omitted	42
BL2022-1459	Omitted	42
BL2022-1460	Omitted	42
BL2022-1461	Omitted	42
BL2022-1462	Omitted	42
BL2022-1463	Omitted	42
BL2022-1464	Omitted	42
BL2022-1465	Omitted	42
BL2022-1466	Omitted	42
BL2022-1467	Omitted	42
BL2022-1468	Omitted	42
BL2022-1469	Omitted	42
BL2022-1470	Included	42
BL2022-1471	Omitted	42
BL2022-1472	Included	42
BL2022-1473	Included	42
BL2022-1474	Omitted	42
BL2022-1475	Omitted	42
BL2022-1476	Included	42
BL2022-1477	Omitted	42
BL2022-1478	Omitted	42
BL2022-1479	Omitted	42
BL2022-1480	Omitted	42
BL2022-1481	Omitted	42
BL2022-1482	Omitted	42
BL2022-1483	Omitted	42
BL2022-1484	Omitted	42
BL2022-1485	Omitted	42
BL2022-1486	Omitted	42
BL2022-1487	Omitted	42
BL2022-1488	Omitted	42
BL2022-1489	Omitted	42
BL2022-1490	Omitted	42
BL2022-1491	Omitted	42
BL2022-1492	Omitted	42
BL2022-1493	Omitted	42
BL2022-1494	Omitted	42
BL2022-1495	Omitted	42
BL2022-1496	Omitted	42
BL2022-1497	Omitted	42
BL2022-1498	Omitted	42
BL2022-1499	Omitted	42
BL2022-1500	Omitted	42
BL2022-1501	Omitted	42
BL2022-1502	Omitted	42

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1503	Omitted	42
BL2022-1504	Omitted	42
BL2022-1505	Omitted	42
BL2022-1506	Included	42
BL2022-1507	Omitted	42
BL2022-1508	Omitted	42
BL2022-1509	Omitted	42
BL2022-1510	Omitted	42
BL2022-1511	Omitted	42
BL2022-1512	Omitted	42
BL2022-1513	Omitted	42
BL2022-1514	Omitted	42
BL2022-1515	Omitted	42
BL2022-1516	Omitted	42
BL2022-1517	Omitted	42
BL2022-1518	Omitted	42
BL2022-1519	Omitted	42
BL2022-1520	Omitted	42
BL2022-1521	Omitted	42
BL2022-1522	Omitted	42
BL2022-1523	Omitted	42
BL2022-1524	Omitted	42
BL2022-1525	Omitted	42
BL2022-1526	Omitted	42
BL2022-1527	Omitted	42
BL2022-1528	Omitted	42
BL2022-1529	Included	42
BL2022-1530	Included	42
BL2022-1531	Omitted	42
BL2022-1532	Omitted	42
BL2022-1533	Omitted	42
BL2022-1534	Omitted	42
BL2022-1535	Omitted	42
BL2022-1536	Omitted	42
BL2022-1537	Omitted	42
BL2022-1538	Omitted	42
BL2022-1539	Omitted	42
BL2022-1540	Omitted	42
BL2022-1541	Omitted	42
BL2022-1542	Omitted	42
BL2022-1543	Omitted	42
BL2022-1544	Omitted	42
BL2022-1545	Omitted	42
BL2022-1546	Omitted	42
BL2022-1547	Omitted	42
BL2022-1548	Omitted	42
BL2022-1549	Omitted	42
BL2022-1550	Omitted	42
BL2022-1551	Omitted	42

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1552	Omitted	42
BL2022-1553	Omitted	42
BL2022-1554	Omitted	42
BL2022-1555	Omitted	42
BL2022-1556	Omitted	42
BL2022-1557	Omitted	42
BL2022-1558	Omitted	42
BL2022-1559	Omitted	42
BL2022-1560	Omitted	42
BL2022-1561	Omitted	42
BL2022-1562	Omitted	42
BL2022-1563	Omitted	42
BL2022-1564	Omitted	42
BL2022-1565	Omitted	42
BL2022-1566	Omitted	42
BL2022-1567	Omitted	42
BL2022-1568	Omitted	42
BL2022-1569	Omitted	42
BL2022-1570	Omitted	42
BL2022-1571	Omitted	42
BL2022-1572	Omitted	42
BL2022-1573	Omitted	42
BL2022-1574	Omitted	42
BL2022-1575	Omitted	42
BL2022-1576	Omitted	42
BL2022-1577	Omitted	42
RS2022-1648	Included	42
Supp. No. 43		
BL2022-1508	Included	43
BL2022-1509	Included	43
BL2022-1528	Included	43
BL2022-1531	Included	43
BL2022-1572	Included	43
BL2022-1578	Omitted	43
BL2022-1579	Included	43
BL2022-1580	Included	43
BL2022-1581	Included	43
BL2022-1582	Omitted	43
BL2022-1583	Omitted	43
BL2022-1584	Omitted	43
BL2022-1585	Omitted	43
BL2022-1586	Omitted	43
BL2022-1587	Omitted	43
BL2022-1588	Omitted	43
BL2022-1589	Omitted	43
BL2022-1590	Omitted	43
BL2022-1591	Omitted	43
BL2022-1592	Omitted	43
BL2022-1593	Omitted	43

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1594	Omitted	43
BL2022-1595	Omitted	43
BL2022-1596	Omitted	43
BL2022-1597	Omitted	43
BL2022-1598	Omitted	43
BL2022-1599	Omitted	43
BL2022-1600	Omitted	43
BL2022-1601	Omitted	43
BL2022-1602	Omitted	43
BL2022-1603	Omitted	43
BL2022-1604	Omitted	43
BL2022-1605	Omitted	43
BL2022-1606	Omitted	43
BL2022-1607	Omitted	43
BL2022-1608	Omitted	43
BL2022-1609	Omitted	43
BL2022-1610	Omitted	43
BL2022-1611	Omitted	43
BL2022-1612	Omitted	43
BL2022-1613	Omitted	43
BL2022-1614	Omitted	43
BL2022-1615	Omitted	43
BL2022-1616	Omitted	43
BL2022-1617	Omitted	43
BL2022-1618	Omitted	43
BL2022-1619	Omitted	43
BL2022-1620	Omitted	43
BL2022-1621	Omitted	43
BL2022-1622	Omitted	43
BL2022-1623	Omitted	43
BL2022-1624	Omitted	43
BL2022-1625	Omitted	43
BL2022-1626	Omitted	43
BL2022-1627	Omitted	43
BL2022-1628	Omitted	43
BL2022-1629	Omitted	43
BL2022-1630	Omitted	43
BL2022-1631	Omitted	43
BL2022-1632	Included	43
BL2022-1633	Included	43
BL2022-1634	Omitted	43
BL2022-1635	Omitted	43
BL2022-1636	Omitted	43
BL2022-1637	Omitted	43
BL2022-1638	Omitted	43
BL2022-1639	Omitted	43
BL2022-1640	Omitted	43
BL2022-1641	Omitted	43
BL2022-1642	Omitted	43

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2022-1643	Omitted	43
BL2022-1644	Omitted	43
BL2022-1645	Omitted	43
BL2022-1646	Omitted	43
BL2023-1647	Included	43
BL2023-1648	Omitted	43
BL2023-1649	Omitted	43
BL2023-1650	Omitted	43
BL2023-1651	Omitted	43
BL2023-1652	Omitted	43
BL2023-1653	Omitted	43
BL2023-1654	Omitted	43
BL2023-1655	Omitted	43
BL2023-1656	Omitted	43
BL2023-1657	Omitted	43
BL2023-1658	Omitted	43
BL2023-1659	Omitted	43
BL2023-1660	Omitted	43
BL2023-1661	Omitted	43
BL2023-1662	Omitted	43
BL2023-1663	Omitted	43
BL2023-1664	Omitted	43
BL2023-1665	Omitted	43
BL2023-1666	Omitted	43
BL2023-1667	Omitted	43
BL2023-1668	Omitted	43
BL2023-1669	Omitted	43
BL2023-1670	Omitted	43
BL2023-1671	Omitted	43
BL2023-1672	Omitted	43
BL2023-1673	Omitted	43
BL2023-1674	Omitted	43
BL2023-1675	Omitted	43
BL2023-1676	Omitted	43
BL2023-1677	Omitted	43
BL2023-1678	Omitted	43
BL2023-1679	Omitted	43
BL2023-1680	Omitted	43
BL2023-1681	Omitted	43
BL2023-1682	Omitted	43
BL2023-1683	Omitted	43
BL2023-1684	Omitted	43
BL2023-1685	Included	43
BL2023-1686	Omitted	43
BL2023-1687	Omitted	43
BL2023-1688	Omitted	43
BL2023-1689	Included	43
BL2023-1690	Included	43
BL2023-1691	Omitted	43

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2023-1692	Omitted	43
BL2023-1693	Omitted	43
BL2023-1694	Omitted	43
BL2023-1695	Omitted	43
BL2023-1696	Omitted	43
BL2023-1697	Omitted	43
BL2023-1698	Omitted	43
BL2023-1699	Omitted	43
BL2023-1700	Omitted	43
BL2023-1701	Omitted	43
BL2023-1702	Omitted	43
BL2023-1703	Omitted	43
BL2023-1704	Omitted	43
BL2023-1705	Omitted	43
BL2023-1706	Omitted	43
BL2023-1707	Omitted	43
BL2023-1708	Omitted	43
BL2023-1709	Omitted	43
BL2023-1710	Omitted	43
BL2023-1711	Omitted	43
BL2023-1712	Omitted	43
BL2023-1713	Omitted	43
BL2023-1714	Omitted	43
BL2023-1715	Omitted	43
BL2023-1716	Omitted	43
BL2023-1717	Omitted	43
BL2023-1718	Omitted	43
BL2023-1719	Omitted	43
BL2023-1720	Omitted	43
BL2023-1721	Omitted	43
BL2023-1722	Omitted	43
BL2023-1723	Omitted	43
BL2023-1724	Omitted	43
BL2023-1725	Omitted	43
BL2023-1726	Omitted	43
BL2023-1727	Omitted	43
BL2023-1728	Omitted	43
BL2023-1729	Omitted	43
BL2023-1730	Omitted	43
BL2023-1731	Included	43
BL2023-1732	Omitted	43
BL2023-1733	Omitted	43
BL2023-1734	Omitted	43
BL2023-1735	Omitted	43
BL2023-1736	Omitted	43
BL2023-1737	Omitted	43
BL2023-1738	Omitted	43
BL2023-1739	Omitted	43

Ord. No./Res. No.	Included/ Omitted	Supp. No.
Supp. No. 44		
BL2022-1471	Included	44
BL2022-1631	Included	44
BL2023-1688	Included	44
BL2023-1691	Included	44
BL2023-1740	Omitted	44
BL2023-1741	Omitted	44
BL2023-1742	Omitted	44
BL2023-1743	Omitted	44
BL2023-1744	Omitted	44
BL2023-1745	Omitted	44
BL2023-1746	Omitted	44
BL2023-1747	Omitted	44
BL2023-1748	Omitted	44
BL2023-1749	Omitted	44
BL2023-1750	Omitted	44
BL2023-1751	Omitted	44
BL2023-1752	Omitted	44
BL2023-1753	Omitted	44
BL2023-1754	Omitted	44
BL2023-1755	Omitted	44
BL2023-1756	Omitted	44
BL2023-1757	Omitted	44
BL2023-1758	Omitted	44
BL2023-1759	Omitted	44
BL2023-1760	Omitted	44
BL2023-1761	Omitted	44
BL2023-1762	Omitted	44
BL2023-1763	Omitted	44
BL2023-1764	Omitted	44
BL2023-1765	Omitted	44
BL2023-1766	Omitted	44
BL2023-1767	Omitted	44
BL2023-1768	Omitted	44
BL2023-1769	Omitted	44
BL2023-1770	Omitted	44
BL2023-1771	Omitted	44
BL2023-1772	Omitted	44
BL2023-1773	Omitted	44
BL2023-1774	Omitted	44
BL2023-1775	Omitted	44
BL2023-1776	Omitted	44
BL2023-1777	Omitted	44
BL2023-1778	Omitted	44
BL2023-1779	Omitted	44
BL2023-1780	Omitted	44
BL2023-1781	Omitted	44
BL2023-1782	Omitted	44
BL2023-1783	Omitted	44

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2023-1784	Omitted	44
BL2023-1785	Omitted	44
BL2023-1786	Omitted	44
BL2023-1787	Omitted	44
BL2023-1788	Omitted	44
BL2023-1789	Omitted	44
BL2023-1790	Omitted	44
BL2023-1791	Omitted	44
BL2023-1792	Omitted	44
BL2023-1793	Omitted	44
BL2023-1794	Omitted	44
BL2023-1795	Omitted	44
BL2023-1796	Omitted	44
BL2023-1797	Omitted	44
BL2023-1798	Omitted	44
BL2023-1799	Omitted	44
BL2023-1800	Omitted	44
BL2023-1801	Omitted	44
BL2023-1802	Omitted	44
BL2023-1803	Omitted	44
BL2023-1804	Omitted	44
BL2023-1805	Omitted	44
BL2023-1806	Omitted	44
BL2023-1807	Omitted	44
BL2023-1808	Omitted	44
BL2023-1809	Omitted	44
BL2023-1810	Omitted	44
BL2023-1811	Omitted	44
BL2023-1812	Omitted	44
BL2023-1813	Omitted	44
BL2023-1814	Omitted	44
BL2023-1815	Omitted	44
BL2023-1816	Omitted	44
BL2023-1817	Omitted	44
BL2023-1818	Omitted	44
BL2023-1819	Omitted	44
BL2023-1820	Omitted	44
BL2023-1821	Omitted	44
BL2023-1822	Omitted	44
BL2023-1823	Omitted	44
BL2023-1824	Omitted	44
BL2023-1825	Omitted	44
BL2023-1826	Omitted	44
BL2023-1827	Omitted	44
BL2023-1828	Omitted	44
BL2023-1829	Omitted	44
BL2023-1830	Omitted	44
BL2023-1831	Omitted	44
BL2023-1832	Omitted	44

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2023-1833	Omitted	44
BL2023-1834	Omitted	44
BL2023-1835	Omitted	44
BL2023-1836	Omitted	44
BL2023-1837	Omitted	44
BL2023-1838	Omitted	44
BL2023-1839	Included	44
BL2023-1840	Omitted	44
BL2023-1841	Omitted	44
BL2023-1842	Omitted	44
BL2023-1843	Omitted	44
BL2023-1844	Omitted	44
BL2023-1845	Omitted	44
BL2023-1846	Omitted	44
BL2023-1847	Omitted	44
BL2023-1848	Omitted	44
BL2023-1849	Omitted	44
BL2023-1850	Omitted	44
BL2023-1851	Omitted	44
BL2023-1852	Omitted	44
BL2023-1853	Omitted	44
BL2023-1854	Omitted	44
BL2023-1855	Omitted	44
BL2023-1856	Omitted	44
BL2023-1857	Omitted	44
BL2023-1858	Omitted	44
BL2023-1859	Omitted	44
BL2023-1860	Omitted	44
BL2023-1861	Omitted	44
BL2023-1862	Included	44
BL2023-1863	Omitted	44
BL2023-1864	Omitted	44
BL2023-1865	Omitted	44
BL2023-1866	Omitted	44
BL2023-1867	Omitted	44
BL2023-1868	Omitted	44
BL2023-1869	Omitted	44
BL2023-1870	Included	44
BL2023-1871	Included	44
BL2023-1872	Omitted	44
BL2023-1873	Omitted	44
BL2023-1874	Omitted	44
BL2023-1875	Omitted	44
BL2023-1876	Omitted	44
BL2023-1877	Omitted	44
BL2023-1878	Omitted	44
BL2023-1879	Omitted	44
BL2023-1880	Omitted	44
BL2023-1881	Omitted	44

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2023-1882	Omitted	44
BL2023-1883	Omitted	44
BL2023-1884	Omitted	44
BL2023-1885	Omitted	44
BL2023-1886	Omitted	44
BL2023-1887	Omitted	44
BL2023-1888	Omitted	44
BL2023-1889	Omitted	44
BL2023-1890	Omitted	44
BL2023-1891	Omitted	44
BL2023-1892	Omitted	44
Supp. No. 45		
BL2023-1858	Included	45
BL2023-1869	Included	45
BL2023-1882	Included	45
BL2023-1884	Included	45
BL2023-1885	Included	45
BL2023-1886	Included	45
BL2023-1887	Included	45
BL2023-1888	Included	45
BL2023-1893	Omitted	45
BL2023-1894	Omitted	45
BL2023-1895	Omitted	45
BL2023-1896	Omitted	45
BL2023-1897	Omitted	45
BL2023-1898	Omitted	45
BL2023-1899	Omitted	45
BL2023-1900	Omitted	45
BL2023-1901	Omitted	45
BL2023-1902	Omitted	45
BL2023-1903	Omitted	45
BL2023-1904	Omitted	45
BL2023-1905	Omitted	45
BL2023-1906	Omitted	45
BL2023-1907	Omitted	45
BL2023-1908	Omitted	45
BL2023-1909	Omitted	45
BL2023-1910	Omitted	45
BL2023-1911	Omitted	45
BL2023-1912	Omitted	45
BL2023-1913	Omitted	45
BL2023-1914	Omitted	45
BL2023-1915	Omitted	45
BL2023-1916	Omitted	45
BL2023-1917	Omitted	45
BL2023-1918	Omitted	45
BL2023-1919	Omitted	45
BL2023-1920	Omitted	45
BL2023-1921	Omitted	45

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2023-1922	Omitted	45
BL2023-1923	Omitted	45
BL2023-1924	Omitted	45
BL2023-1925	Omitted	45
BL2023-1926	Omitted	45
BL2023-1927	Omitted	45
BL2023-1928	Omitted	45
BL2023-1929	Omitted	45
BL2023-1930	Omitted	45
BL2023-1931	Omitted	45
BL2023-1932	Omitted	45
BL2023-1933	Omitted	45
BL2023-1934	Omitted	45
BL2023-1935	Omitted	45
BL2023-1936	Omitted	45
BL2023-1937	Omitted	45
BL2023-1938	Omitted	45
BL2023-1939	Omitted	45
BL2023-1940	Omitted	45
BL2023-1941	Omitted	45
BL2023-1942	Omitted	45
BL2023-1943	Omitted	45
BL2023-1944	Omitted	45
BL2023-1945	Omitted	45
BL2023-1946	Omitted	45
BL2023-1947	Omitted	45
BL2023-1948	Omitted	45
BL2023-1949	Omitted	45
BL2023-1950	Omitted	45
BL2023-1951	Omitted	45
BL2023-1952	Omitted	45
BL2023-1953	Omitted	45
BL2023-1954	Omitted	45
BL2023-1955	Omitted	45
BL2023-1956	Omitted	45
BL2023-1957	Omitted	45
BL2023-1958	Omitted	45
BL2023-1959	Omitted	45
BL2023-1960	Omitted	45
BL2023-1961	Omitted	45
BL2023-1962	Omitted	45
BL2023-1963	Omitted	45
BL2023-1964	Omitted	45
BL2023-1965	Omitted	45
BL2023-1966	Omitted	45
BL2023-1967	Omitted	45
BL2023-1968	Omitted	45
BL2023-1969	Omitted	45
BL2023-1970	Omitted	45

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2023-1971	Omitted	45
BL2023-1972	Omitted	45
BL2023-1973	Omitted	45
BL2023-1974	Omitted	45
BL2023-1975	Omitted	45
BL2023-1976	Omitted	45
BL2023-1977	Omitted	45
BL2023-1978	Omitted	45
BL2023-1979	Omitted	45
BL2023-1980	Omitted	45
BL2023-1981	Omitted	45
BL2023-1982	Omitted	45
BL2023-1983	Omitted	45
BL2023-1984	Omitted	45
BL2023-1985	Omitted	45
BL2023-1986	Omitted	45
BL2023-1987	Omitted	45
BL2023-1988	Omitted	45
BL2023-1989	Omitted	45
BL2023-1990	Included	45
BL2023-1991	Included	45
BL2023-1992	Omitted	45
BL2023-1993	Omitted	45
BL2023-1994	Included	45
BL2023-1995	Omitted	45
BL2023-1996	Omitted	45
BL2023-1997	Omitted	45
BL2023-1998	Omitted	45
BL2023-1999	Omitted	45
BL2023-2000	Omitted	45
BL2023-2001	Omitted	45
BL2023-2002	Omitted	45
BL2023-2003	Omitted	45
BL2023-2004	Included	45
BL2023-2005	Omitted	45
BL2023-2006	Included	45
BL2023-2007	Included	45
BL2023-2008	Included	45
BL2023-2009	Included	45
BL2023-2010	Included	45
BL2023-2011	Omitted	45
BL2023-2012	Omitted	45
BL2023-2013	Omitted	45
BL2023-2014	Omitted	45
BL2023-2015	Omitted	45
BL2023-2016	Omitted	45
BL2023-2017	Omitted	45
BL2023-2018	Omitted	45
BL2023-2019	Omitted	45

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2023-2020	Omitted	45
BL2023-2021	Omitted	45
BL2023-2022	Omitted	45
BL2023-2023	Omitted	45
BL2023-2024	Omitted	45
BL2023-2025	Omitted	45
BL2023-2026	Omitted	45
BL2023-2027	Omitted	45
BL2023-2028	Omitted	45
BL2023-2029	Omitted	45
BL2023-2030	Omitted	45
BL2023-2031	Omitted	45
BL2023-2032	Omitted	45
BL2023-2033	Omitted	45
BL2023-2034	Omitted	45
BL2023-2035	Omitted	45
BL2023-2036	Omitted	45
BL2023-2037	Omitted	45
BL2023-2038	Omitted	45
BL2023-2039	Omitted	45
BL2023-2040	Omitted	45
BL2023-2041	Omitted	45
BL2023-2042	Omitted	45
BL2023-2043	Omitted	45
BL2023-2044	Omitted	45
BL2023-2045	Omitted	45
BL2023-2046	Omitted	45
BL2023-2047	Omitted	45
BL2023-2048	Omitted	45
BL2023-2049	Omitted	45
BL2023-2050	Omitted	45
BL2023-2051	Omitted	45
BL2023-2052	Omitted	45
BL2023-2053	Omitted	45
BL2023-2054	Omitted	45
BL2023-2055	Omitted	45
BL2023-2056	Omitted	45
BL2023-2057	Omitted	45
BL2023-2058	Omitted	45
BL2023-2059	Omitted	45
BL2023-2060	Omitted	45
BL2023-2061	Omitted	45
BL2023-2062	Omitted	45
BL2023-2063	Omitted	45
BL2023-2064	Omitted	45
BL2023-2065	Omitted	45
BL2023-2066	Omitted	45
BL2023-2067	Omitted	45
BL2023-2068	Omitted	45

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2023-2069	Omitted	45
BL2023-2070	Omitted	45
BL2023-2071	Omitted	45
BL2023-2072	Omitted	45
BL2023-2073	Omitted	45
BL2023-2074	Omitted	45
BL2023-2075	Omitted	45
BL2023-2076	Omitted	45
BL2023-2077	Omitted	45
BL2023-2078	Omitted	45
BL2023-2079	Omitted	45
BL2023-2080	Omitted	45
BL2023-2081	Omitted	45
BL2023-2082	Omitted	45
BL2023-2083	Omitted	45
BL2023-2084	Omitted	45
BL2023-2085	Omitted	45
BL2023-2086	Omitted	45
BL2023-2087	Omitted	45
BL2023-2088	Omitted	45
BL2023-2089	Omitted	45
BL2023-2090	Omitted	45
BL2023-2091	Omitted	45
BL2023-2092	Omitted	45
BL2023-2093	Omitted	45
BL2023-2094	Omitted	45
BL2023-2095	Omitted	45
BL2023-2096	Omitted	45
BL2023-2097	Omitted	45
BL2023-2098	Omitted	45
BL2023-2099	Omitted	45
BL2023-2100	Omitted	45
BL2023-2101	Omitted	45
BL2023-2102	Omitted	45
BL2023-2103	Omitted	45
BL2023-2104	Omitted	45
BL2023-2105	Omitted	45
BL2023-2106	Included	45
BL2023-2107	Omitted	45
BL2023-2108	Omitted	45
BL2023-2109	Omitted	45
BL2023-2110	Omitted	45
BL2023-2111	Omitted	45
BL2023-2112	Omitted	45
BL2023-2113	Omitted	45
BL2023-2114	Omitted	45
BL2023-2115	Omitted	45
BL2023-2116	Omitted	45
BL2023-2117	Omitted	45

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2023-2118	Omitted	45
BL2023-2119	Omitted	45
BL2023-2120	Omitted	45
BL2023-2121	Omitted	45
BL2023-2122	Omitted	45
BL2023-2123	Omitted	45
BL2023-2124	Omitted	45
BL2023-2125	Included	45
Supp. No. 46		
BL2023-1	Omitted	46
BL2023-2	Omitted	46
BL2023-3	Included	46
BL2023-4	Omitted	46
BL2023-5	Omitted	46
BL2023-6	Omitted	46
BL2023-7	Omitted	46
BL2023-8	Omitted	46
BL2023-9	Omitted	46
BL2023-10	Omitted	46
BL2023-11	Omitted	46
BL2023-12	Omitted	46
BL2023-13	Omitted	46
BL2023-14	Omitted	46
BL2023-15	Omitted	46
BL2023-16	Omitted	46
BL2023-17	Omitted	46
BL2023-18	Omitted	46
BL2023-19	Omitted	46
BL2023-20	Omitted	46
BL2023-21	Omitted	46
BL2023-22	Omitted	46
BL2023-23	Omitted	46
BL2023-24	Omitted	46
BL2023-25	Omitted	46
BL2023-26	Omitted	46
BL2023-27	Omitted	46
BL2023-28	Omitted	46
BL2023-29	Omitted	46
BL2023-30	Omitted	46
BL2023-31	Omitted	46
BL2023-32	Omitted	46
BL2023-33	Omitted	46
BL2023-34	Omitted	46
BL2023-35	Omitted	46
BL2023-36	Omitted	46
BL2023-37	Omitted	46
BL2023-38	Omitted	46
BL2023-39	Omitted	46
BL2023-40	Omitted	46

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2023-41	Omitted	46
BL2023-42	Omitted	46
BL2023-43	Omitted	46
BL2023-44	Omitted	46
BL2023-45	Omitted	46
BL2023-46	Omitted	46
BL2023-47	Omitted	46
BL2023-48	Omitted	46
BL2023-49	Omitted	46
BL2023-50	Omitted	46
BL2023-51	Omitted	46
BL2023-52	Omitted	46
BL2023-53	Omitted	46
BL2023-54	Omitted	46
BL2023-55	Omitted	46
BL2023-56	Omitted	46
BL2023-57	Omitted	46
BL2023-58	Omitted	46
BL2023-59	Omitted	46
BL2023-60	Omitted	46
BL2023-61	Omitted	46
BL2023-62	Omitted	46
BL2023-63	Omitted	46
BL2023-64	Omitted	46
BL2023-65	Omitted	46
BL2023-66	Omitted	46
BL2023-67	Omitted	46
BL2023-68	Omitted	46
BL2023-69	Omitted	46
BL2023-70	Included	46
BL2023-71	Included	46
BL2023-72	Included	46
BL2023-73	Omitted	46
BL2023-74	Omitted	46
BL2023-75	Omitted	46
BL2023-76	Omitted	46
BL2023-77	Omitted	46
BL2023-78	Included	46
BL2023-79	Included	46
BL2023-80	Omitted	46
BL2023-81	Omitted	46
BL2023-82	Omitted	46
BL2023-83	Omitted	46
BL2023-84	Omitted	46
BL2023-85	Omitted	46
BL2023-86	Omitted	46
BL2023-87	Omitted	46
BL2023-88	Omitted	46
BL2023-89	Omitted	46

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2023-90	Omitted	46
BL2023-91	Omitted	46
BL2023-92	Omitted	46
BL2023-93	Omitted	46
BL2023-94	Omitted	46
BL2023-95	Omitted	46
BL2023-96	Omitted	46
BL2023-97	Omitted	46
BL2023-98	Omitted	46
BL2023-99	Omitted	46
BL2023-100	Omitted	46
BL2023-101	Omitted	46
BL2023-102	Omitted	46
BL2023-103	Omitted	46
BL2023-104	Omitted	46
BL2023-105	Omitted	46
BL2023-106	Omitted	46
BL2023-107	Omitted	46
BL2023-108	Omitted	46
BL2023-109	Omitted	46
BL2023-110	Omitted	46
BL2023-111	Omitted	46
BL2023-112	Omitted	46
BL2023-113	Omitted	46
BL2023-114	Omitted	46
BL2023-115	Omitted	46
BL2023-116	Omitted	46
BL2023-117	Omitted	46
BL2023-118	Omitted	46
BL2023-119	Included	46
BL2023-120	Included	46
BL2023-121	Omitted	46
BL2023-122	Omitted	46
BL2023-123	Omitted	46
BL2023-124	Omitted	46
BL2023-125	Omitted	46
BL2023-126	Omitted	46
BL2023-127	Omitted	46
BL2023-128	Omitted	46
BL2023-129	Omitted	46
BL2023-130	Omitted	46
BL2023-131	Omitted	46
BL2023-132	Omitted	46
BL2023-133	Omitted	46
BL2023-134	Omitted	46
BL2023-135	Omitted	46
BL2023-136	Included	46
BL2023-137	Included	46
BL2023-138	Included	46

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2023-139	Omitted	46
BL2023-140	Omitted	46
BL2023-141	Omitted	46
BL2023-142	Omitted	46
BL2023-143	Omitted	46
BL2023-144	Omitted	46
BL2023-145	Omitted	46
BL2023-146	Omitted	46
BL2023-147	Omitted	46
BL2023-148	Omitted	46
BL2023-149	Omitted	46
BL2023-150	Omitted	46
BL2023-151	Omitted	46
BL2024-152	Included	46
BL2024-153	Included	46
BL2024-154	Included	46
BL2024-155	Omitted	46
BL2024-156	Omitted	46
BL2024-157	Omitted	46
BL2024-158	Omitted	46
BL2024-159	Omitted	46
BL2024-160	Omitted	46
BL2024-161	Omitted	46
BL2024-162	Omitted	46
BL2024-163	Omitted	46
BL2024-164	Omitted	46
BL2024-165	Omitted	46
BL2024-166	Omitted	46
BL2024-167	Omitted	46
BL2024-168	Omitted	46
BL2024-169	Omitted	46
BL2024-170	Omitted	46
BL2024-171	Omitted	46
BL2024-172	Omitted	46
BL2024-173	Omitted	46
BL2024-174	Omitted	46
BL2024-175	Omitted	46
BL2024-176	Omitted	46
BL2024-177	Omitted	46
BL2024-178	Omitted	46
BL2024-179	Omitted	46
BL2024-180	Included	46
BL2024-181	Omitted	46
BL2024-182	Omitted	46
BL2024-183	Omitted	46
BL2024-184	Omitted	46
BL2024-185	Omitted	46
BL2024-186	Omitted	46
BL2024-187	Omitted	46

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2024-188	Omitted	46
BL2024-189	Omitted	46
BL2024-190	Omitted	46
BL2024-191	Omitted	46
BL2024-192	Omitted	46
BL2024-193	Omitted	46
BL2024-194	Omitted	46
BL2024-195	Omitted	46
BL2024-196	Omitted	46
BL2024-197	Omitted	46
BL2024-198	Omitted	46
BL2024-199	Omitted	46
BL2024-200	Omitted	46
BL2024-201	Omitted	46
BL2024-202	Omitted	46
BL2024-203	Omitted	46
BL2024-204	Omitted	46
BL2024-205	Omitted	46
BL2024-206	Omitted	46
BL2024-207	Omitted	46
BL2024-208	Omitted	46
BL2024-209	Omitted	46
BL2024-210	Omitted	46
BL2024-211	Omitted	46
BL2024-212	Omitted	46
BL2024-213	Omitted	46
BL2024-214	Omitted	46
BL2024-215	Omitted	46
BL2024-216	Omitted	46
BL2024-217	Omitted	46
BL2024-218	Omitted	46
BL2024-219	Omitted	46
BL2024-220	Omitted	46
BL2024-221	Omitted	46
BL2024-222	Omitted	46
BL2024-223	Omitted	46
BL2024-224	Omitted	46
BL2024-225	Omitted	46
BL2024-226	Omitted	46
BL2024-227	Omitted	46
BL2024-228	Omitted	46
BL2024-229	Omitted	46
BL2024-230	Included	46
BL2024-231	Omitted	46
BL2024-232	Omitted	46
BL2024-233	Omitted	46
BL2024-234	Omitted	46
BL2024-235	Omitted	46
BL2024-236	Omitted	46

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2024-237	Omitted	46
BL2024-238	Omitted	46
BL2024-239	Omitted	46
BL2024-240	Omitted	46
BL2024-241	Omitted	46
BL2024-242	Omitted	46
BL2024-243	Omitted	46
BL2024-244	Omitted	46
BL2024-245	Omitted	46
BL2024-246	Omitted	46
BL2024-247	Omitted	46
BL2024-248	Omitted	46
BL2024-249	Omitted	46
BL2024-250	Omitted	46
BL2024-251	Omitted	46
BL2024-252	Omitted	46
BL2024-253	Omitted	46
Supp. No. 47		
BL2024-179	Included	47
BL2024-182	Included	47
BL2024-184	Included	47
BL2024-254	Omitted	47
BL2024-255	Omitted	47
BL2024-256	Omitted	47
BL2024-257	Omitted	47
BL2024-258	Omitted	47
BL2024-259	Omitted	47
BL2024-260	Omitted	47
BL2024-261	Included	47
BL2024-262	Omitted	47
BL2024-263	Omitted	47
BL2024-264	Omitted	47
BL2024-265	Omitted	47
BL2024-266	Omitted	47
BL2024-267	Omitted	47
BL2024-268	Omitted	47
BL2024-269	Omitted	47
BL2024-270	Omitted	47
BL2024-271	Omitted	47
BL2024-272	Omitted	47
BL2024-273	Omitted	47
BL2024-274	Omitted	47
BL2024-275	Omitted	47
BL2024-276	Omitted	47
BL2024-277	Omitted	47
BL2024-278	Omitted	47
BL2024-279	Omitted	47
BL2024-280	Omitted	47
BL2024-281	Omitted	47

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2024-282	Omitted	47
BL2024-283	Omitted	47
BL2024-284	Omitted	47
BL2024-285	Omitted	47
BL2024-286	Omitted	47
BL2024-287	Omitted	47
BL2024-288	Omitted	47
BL2024-289	Omitted	47
BL2024-290	Included	47
BL2024-291	Included	47
BL2024-292	Included	47
BL2024-293	Omitted	47
BL2024-294	Included	47
BL2024-295	Omitted	47
BL2024-296	Omitted	47
BL2024-297	Omitted	47
BL2024-298	Omitted	47
BL2024-299	Omitted	47
BL2024-300	Omitted	47
BL2024-301	Included	47
BL2024-302	Included	47
BL2024-303	Omitted	47
BL2024-304	Included	47
BL2024-305	Omitted	47
BL2024-306	Omitted	47
BL2024-307	Omitted	47
BL2024-308	Omitted	47
BL2024-309	Omitted	47
BL2024-310	Omitted	47
BL2024-311	Omitted	47
BL2024-312	Omitted	47
BL2024-313	Omitted	47
BL2024-314	Omitted	47
BL2024-315	Omitted	47
BL2024-316	Omitted	47
BL2024-317	Omitted	47
BL2024-318	Omitted	47
BL2024-319	Omitted	47
BL2024-320	Omitted	47
BL2024-321	Omitted	47
BL2024-322	Omitted	47
BL2024-323	Omitted	47
BL2024-324	Omitted	47
BL2024-325	Omitted	47
BL2024-326	Omitted	47
BL2024-327	Omitted	47
BL2024-328	Omitted	47
BL2024-329	Omitted	47
BL2024-330	Omitted	47

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2024-331	Omitted	47
BL2024-332	Omitted	47
BL2024-333	Omitted	47
BL2024-334	Included	47
BL2024-335	Omitted	47
BL2024-336	Omitted	47
BL2024-337	Omitted	47
BL2024-338	Omitted	47
BL2024-339	Omitted	47
BL2024-340	Omitted	47
BL2024-341	Omitted	47
BL2024-342	Omitted	47
Supp. No. 48		
BL2024-187	Included	48
BL2024-335	Included	48
BL2024-343	Omitted	48
BL2024-344	Included	48
BL2024-345	Included	48
BL2024-346	Included	48
BL2024-347	Omitted	48
BL2024-348	Omitted	48
BL2024-349	Omitted	48
BL2024-350	Omitted	48
BL2024-351	Omitted	48
BL2024-352	Omitted	48
BL2024-353	Omitted	48
BL2024-354	Omitted	48
BL2024-355	Omitted	48
BL2024-356	Omitted	48
BL2024-357	Omitted	48
BL2024-358	Omitted	48
BL2024-359	Omitted	48
BL2024-360	Omitted	48
BL2024-361	Omitted	48
BL2024-362	Omitted	48
BL2024-363	Omitted	48
BL2024-364	Omitted	48
BL2024-365	Omitted	48
BL2024-366	Omitted	48
BL2024-367	Omitted	48
BL2024-368	Omitted	48
BL2024-369	Omitted	48
BL2024-370	Omitted	48
BL2024-371	Omitted	48
BL2024-372	Omitted	48
BL2024-373	Omitted	48
BL2024-374	Omitted	48
BL2024-375	Included	48
BL2024-376	Omitted	48

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2024-377	Omitted	48
BL2024-378	Omitted	48
BL2024-379	Omitted	48
BL2024-380	Omitted	48
BL2024-381	Omitted	48
BL2024-382	Omitted	48
BL2024-383	Omitted	48
BL2024-384	Omitted	48
BL2024-385	Omitted	48
BL2024-386	Omitted	48
BL2024-387	Omitted	48
BL2024-388	Omitted	48
BL2024-389	Omitted	48
BL2024-390	Included	48
BL2024-391	Included	48
BL2024-392	Omitted	48
BL2024-393	Omitted	48
BL2024-394	Omitted	48
BL2024-395	Omitted	48
BL2024-396	Omitted	48
BL2024-397	Omitted	48
BL2024-398	Omitted	48
BL2024-399	Omitted	48
BL2024-400	Omitted	48
BL2024-401	Omitted	48
BL2024-402	Omitted	48
BL2024-403	Omitted	48
BL2024-404	Omitted	48
BL2024-405	Omitted	48
BL2024-406	Omitted	48
BL2024-407	Omitted	48
BL2024-408	Omitted	48
BL2024-409	Omitted	48
BL2024-410	Omitted	48
BL2024-411	Omitted	48
BL2024-412	Omitted	48
BL2024-413	Omitted	48
BL2024-414	Omitted	48
BL2024-415	Omitted	48
BL2024-416	Omitted	48
BL2024-417	Omitted	48
BL2024-418	Omitted	48
BL2024-419	Omitted	48
BL2024-420	Omitted	48
BL2024-421	Omitted	48
BL2024-422	Omitted	48
BL2024-423	Omitted	48
BL2024-424	Omitted	48
BL2024-425	Omitted	48

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2024-426	Included	48
BL2024-427	Omitted	48
BL2024-428	Omitted	48
BL2024-429	Omitted	48
BL2024-430	Omitted	48
BL2024-431	Omitted	48
BL2024-432	Omitted	48
BL2024-433	Omitted	48
BL2024-434	Omitted	48
BL2024-435	Omitted	48
BL2024-436	Omitted	48
BL2024-437	Omitted	48
BL2024-438	Omitted	48
BL2024-439	Omitted	48
BL2024-440	Omitted	48
BL2024-441	Omitted	48
BL2024-442	Omitted	48
BL2024-443	Omitted	48
BL2024-444	Omitted	48
BL2024-445	Omitted	48
BL2024-446	Omitted	48
BL2024-447	Omitted	48
BL2024-448	Omitted	48
BL2024-449	Omitted	48
BL2024-450	Omitted	48
BL2024-451	Omitted	48
BL2024-452	Included	48
BL2024-453	Omitted	48
BL2024-454	Omitted	48
BL2024-455	Omitted	48
BL2024-456	Omitted	48
BL2024-457	Omitted	48
BL2024-458	Omitted	48
BL2024-459	Omitted	48
BL2024-460	Omitted	48
BL2024-461	Omitted	48
BL2024-462	Omitted	48
BL2024-463	Omitted	48
BL2024-464	Omitted	48
BL2024-465	Omitted	48
BL2024-466	Omitted	48
BL2024-467	Included	48
BL2024-468	Omitted	48
BL2024-469	Omitted	48
BL2024-470	Included	48
BL2024-471	Omitted	48
BL2024-472	Omitted	48
BL2024-473	Omitted	48
BL2024-474	Omitted	48

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2024-475	Omitted	48
Supp. No. 49		
BL2024-468	Included	49
BL2024-476	Included	49
BL2024-477	Included	49
BL2024-478	Included	49
BL2024-479	Omitted	49
BL2024-480	Omitted	49
BL2024-481	Omitted	49
BL2024-482	Omitted	49
BL2024-483	Omitted	49
BL2024-484	Omitted	49
BL2024-485	Omitted	49
BL2024-486	Omitted	49
BL2024-487	Omitted	49
BL2024-488	Omitted	49
BL2024-489	Omitted	49
BL2024-490	Omitted	49
BL2024-491	Omitted	49
BL2024-492	Omitted	49
BL2024-493	Omitted	49
BL2024-494	Omitted	49
BL2024-495	Included	49
BL2024-496	Omitted	49
BL2024-497	Omitted	49
BL2024-498	Omitted	49
BL2024-499	Omitted	49
BL2024-500	Omitted	49
BL2024-501	Omitted	49
BL2024-502	Omitted	49
BL2024-503	Omitted	49
BL2024-504	Omitted	49
BL2024-505	Omitted	49
BL2024-506	Omitted	49
BL2024-507	Omitted	49
BL2024-508	Omitted	49
BL2024-509	Included	49
BL2024-510	Included	49
BL2024-511	Included	49
BL2024-512	Included	49
BL2024-513	Included	49
BL2024-514	Included	49
BL2024-515	Omitted	49
BL2024-516	Omitted	49
BL2024-517	Omitted	49
BL2024-518	Omitted	49
BL2024-519	Omitted	49
BL2024-520	Omitted	49
BL2024-521	Omitted	49

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2024-522	Omitted	49
BL2024-523	Omitted	49
BL2024-524	Omitted	49
BL2024-525	Omitted	49
BL2024-526	Omitted	49
BL2024-527	Omitted	49
BL2024-528	Omitted	49
BL2024-529	Omitted	49
BL2024-530	Omitted	49
BL2024-531	Omitted	49
BL2024-532	Omitted	49
BL2024-533	Omitted	49
BL2024-534	Omitted	49
BL2024-535	Omitted	49
BL2024-536	Omitted	49
BL2024-537	Omitted	49
BL2024-538	Omitted	49
BL2024-539	Omitted	49
BL2024-540	Omitted	49
BL2024-541	Omitted	49
BL2024-542	Omitted	49
BL2024-543	Omitted	49
BL2024-544	Omitted	49
BL2024-545	Omitted	49
BL2024-546	Omitted	49
BL2024-547	Omitted	49
BL2024-548	Omitted	49
BL2024-549	Omitted	49
BL2024-550	Omitted	49
BL2024-551	Included	49
BL2024-552	Included	49
BL2024-553	Omitted	49
BL2024-554	Omitted	49
BL2024-555	Omitted	49
BL2024-556	Omitted	49
BL2024-557	Omitted	49
BL2024-558	Omitted	49
BL2024-559	Omitted	49
BL2024-560	Omitted	49
BL2024-561	Omitted	49
BL2024-562	Omitted	49
BL2024-563	Omitted	49
BL2024-564	Omitted	49
BL2024-565	Omitted	49
BL2024-566	Omitted	49
BL2024-567	Omitted	49
BL2024-568	Omitted	49
BL2024-569	Omitted	49
BL2024-570	Omitted	49

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2024-571	Omitted	49
BL2024-572	Omitted	49
BL2024-573	Omitted	49
BL2024-574	Omitted	49
BL2024-575	Omitted	49
BL2024-576	Omitted	49
BL2024-577	Omitted	49
BL2024-578	Omitted	49
BL2024-579	Omitted	49
BL2024-580	Omitted	49
BL2024-581	Omitted	49
BL2024-582	Included	49
BL2024-583	Included	49
BL2024-584	Omitted	49
BL2024-585	Omitted	49
BL2024-586	Omitted	49
BL2024-587	Omitted	49
BL2024-588	Omitted	49
BL2024-589	Omitted	49
BL2024-590	Omitted	49
BL2024-591	Omitted	49
BL2024-592	Omitted	49
BL2024-593	Omitted	49
Supp. No. 50		
BL2024-594	Included	50
BL2024-595	Included	50
BL2024-596	Omitted	50
BL2024-597	Omitted	50
BL2024-598	Omitted	50
BL2024-599	Omitted	50
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BL2024-605	Omitted	50
BL2024-606	Omitted	50
BL2024-607	Omitted	50
BL2024-608	Omitted	50
BL2024-609	Omitted	50
BL2024-610	Omitted	50
BL2024-611	Omitted	50
BL2024-612	Omitted	50
BL2024-613	Omitted	50
BL2024-614	Omitted	50
BL2024-615	Omitted	50
BL2024-616	Omitted	50
BL2024-617	Included	50
BL2024-618	Omitted	50

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2024-619	Omitted	50
BL2024-620	Omitted	50
BL2024-621	Omitted	50
BL2024-622	Omitted	50
BL2024-623	Omitted	50
BL2024-624	Omitted	50
BL2024-625	Omitted	50
BL2024-626	Included	50
BL2024-627	Omitted	50
BL2024-628	Omitted	50
BL2024-629	Omitted	50
BL2024-630	Omitted	50
BL2024-631	Omitted	50
BL2024-632	Omitted	50
BL2024-633	Omitted	50
BL2024-634	Omitted	50
BL2024-635	Omitted	50
BL2024-636	Omitted	50
BL2024-637	Omitted	50
BL2024-638	Omitted	50
BL2024-639	Omitted	50
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BL2024-642	Omitted	50
BL2024-643	Omitted	50
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BL2024-653	Omitted	50
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BL2024-660	Omitted	50
BL2024-661	Omitted	50
BL2024-662	Omitted	50
BL2024-663	Omitted	50
BL2024-664	Omitted	50
BL2024-665	Omitted	50
BL2024-666	Omitted	50
BL2024-667	Omitted	50

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2024-668	Omitted	50
BL2024-669	Omitted	50
BL2024-670	Omitted	50
BL2024-671	Omitted	50
BL2024-672	Omitted	50
BL2024-673	Omitted	50
BL2024-674	Omitted	50
BL2024-675	Omitted	50
BL2024-676	Omitted	50
BL2024-677	Omitted	50
BL2024-678	Omitted	50
BL2024-679	Omitted	50
BL2024-680	Omitted	50
BL2024-681	Omitted	50
BL2024-682	Omitted	50
BL2024-683	Included	50
BL2024-684	Omitted	50
BL2024-685	Omitted	50
BL2024-686	Omitted	50
BL2024-687	Included	50
BL2025-688	Omitted	50
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BL2025-691	Omitted	50
BL2025-692	Omitted	50
BL2025-693	Omitted	50
BL2025-694	Omitted	50
BL2025-695	Omitted	50
BL2025-696	Omitted	50
BL2025-697	Omitted	50
BL2025-698	Omitted	50
BL2025-699	Omitted	50
BL2025-700	Omitted	50
BL2025-701	Omitted	50
BL2025-702	Omitted	50
Supp. No. 51		
BL2025-690	Included	51
BL2025-703	Omitted	51
BL2025-704	Omitted	51
BL2025-705	Omitted	51
BL2025-706	Omitted	51
BL2025-707	Omitted	51
BL2025-708	Omitted	51
BL2025-709	Omitted	51
BL2025-710	Omitted	51
BL2025-711	Omitted	51
BL2025-712	Omitted	51
BL2025-713	Omitted	51
BL2025-714	Omitted	51

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2025-715	Omitted	51
BL2025-716	Omitted	51
BL2025-717	Omitted	51
BL2025-718	Omitted	51
BL2025-719	Omitted	51
BL2025-720	Omitted	51
BL2025-721	Omitted	51
BL2025-722	Omitted	51
BL2025-723	Omitted	51
BL2025-724	Omitted	51
BL2025-725	Omitted	51
BL2025-726	Omitted	51
BL2025-727	Omitted	51
BL2025-728	Omitted	51
BL2025-729	Omitted	51
BL2025-730	Omitted	51
BL2025-731	Omitted	51
BL2025-732	Omitted	51
BL2025-733	Omitted	51
BL2025-734	Omitted	51
BL2025-735	Omitted	51
BL2025-736	Omitted	51
BL2025-737	Omitted	51
BL2025-738	Omitted	51
BL2025-739	Omitted	51
BL2025-740	Omitted	51
BL2025-741	Omitted	51
BL2025-742	Included	51
BL2025-743	Omitted	51
BL2025-744	Omitted	51
BL2025-745	Included	51
BL2025-746	Omitted	51
BL2025-747	Omitted	51
BL2025-748	Omitted	51
BL2025-749	Omitted	51
BL2025-750	Omitted	51
BL2025-751	Omitted	51
BL2025-752	Omitted	51
BL2025-753	Omitted	51
BL2025-754	Omitted	51
BL2025-755	Omitted	51
BL2025-756	Omitted	51
BL2025-757	Omitted	51
BL2025-758	Omitted	51
BL2025-759	Omitted	51
BL2025-760	Omitted	51
BL2025-761	Included	51
BL2025-762	Omitted	51
BL2025-763	Omitted	51

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2025-764	Omitted	51
BL2025-765	Omitted	51
BL2025-766	Omitted	51
BL2025-767	Omitted	51
BL2025-768	Omitted	51
BL2025-769	Omitted	51
BL2025-770	Included	51
BL2025-771	Included	51
BL2025-772	Omitted	51
BL2025-773	Omitted	51
BL2025-774	Omitted	51
BL2025-775	Omitted	51
BL2025-776	Omitted	51
BL2025-777	Omitted	51
BL2025-778	Omitted	51
BL2025-779	Omitted	51
BL2025-780	Omitted	51
BL2025-781	Omitted	51
BL2025-782	Omitted	51
BL2025-783	Omitted	51
BL2025-784	Omitted	51
BL2025-785	Omitted	51
BL2025-786	Omitted	51
BL2025-787	Omitted	51
BL2025-788	Omitted	51
BL2025-789	Omitted	51
BL2025-790	Omitted	51
BL2025-791	Omitted	51
BL2025-792	Omitted	51
BL2025-793	Omitted	51
BL2025-794	Omitted	51
BL2025-795	Omitted	51
BL2025-796	Omitted	51
BL2025-797	Omitted	51
BL2025-798	Omitted	51
BL2025-799	Included	51
BL2025-800	Omitted	51
BL2025-801	Omitted	51
BL2025-802	Omitted	51
BL2025-803	Omitted	51
BL2025-804	Omitted	51
BL2025-805	Omitted	51
BL2025-806	Omitted	51
BL2025-807	Omitted	51
BL2025-808	Omitted	51
BL2025-809	Omitted	51
BL2025-810	Omitted	51
BL2025-811	Included	51
BL2025-812	Included	51

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2025-813	Included	51
BL2025-814	Omitted	51
BL2025-815	Omitted	51
BL2025-816	Omitted	51
BL2025-817	Omitted	51
Supp. No. 52		
BL2025-818	Included	52
BL2025-819	Included	52
BL2025-820	Included	52
BL2025-821	Omitted	52
BL2025-822	Omitted	52
BL2025-823	Omitted	52
BL2025-824	Included	52
BL2025-825	Omitted	52
BL2025-826	Omitted	52
BL2025-827	Omitted	52
BL2025-828	Omitted	52
BL2025-829	Omitted	52
BL2025-830	Omitted	52
BL2025-831	Omitted	52
BL2025-832	Omitted	52
BL2025-833	Omitted	52
BL2025-834	Omitted	52
BL2025-835	Omitted	52
BL2025-836	Included	52
BL2025-837	Omitted	52
BL2025-838	Omitted	52
BL2025-839	Omitted	52
BL2025-840	Omitted	52
BL2025-841	Omitted	52
BL2025-842	Omitted	52
BL2025-843	Omitted	52
BL2025-844	Omitted	52
BL2025-845	Omitted	52
BL2025-846	Included	52
BL2025-847	Omitted	52
BL2025-848	Omitted	52
BL2025-849	Omitted	52
BL2025-850	Omitted	52
BL2025-851	Omitted	52
BL2025-852	Omitted	52
BL2025-853	Omitted	52
BL2025-854	Omitted	52
BL2025-855	Omitted	52
BL2025-856	Omitted	52
BL2025-857	Omitted	52
BL2025-858	Omitted	52
BL2025-859	Omitted	52
BL2025-860	Omitted	52

Ord. No./Res. No.	Included/ Omitted	Supp. No.
BL2025-861	Omitted	52
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BL2025-1138	Omitted	53
BL2025-1139	Omitted	53
BL2025-1140	Omitted	53
BL2025-1141	Omitted	53

Table of Contents

Part I	**The Charter of the Metropolitan Government of Nashville and Davidson County, Tennessee**	
	Appendix One.	**Description of Boundaries of Urban Services District**
	Appendix Two.	**Description of Thirty-Five Metropolitan Councilmanic Districts [and Nine School Districts]**
	Appendix Three.	**Electric Power Board**
	Appendix Four.	**Transit Authority**
Part II	**Related Private Laws**	
	Charter and Related Laws Comparative Table	
	Index	

Part I

CHARTER OF THE METROPOLITAN GOVERNMENT OF NASHVILLE AND DAVIDSON COUNTY, TENNESSEE*

***State constitution reference—**Authority of general assembly to provide for consolidation of cities and counties.

State law reference—Metropolitan governments, T.C.A., §§ 7-1-101.

Annotation—Metropolitan Charter upheld, constitutionality of enabling legislation discussed, C.T.C.A., §§ 6-3701 et seq., Frazier v. Carr, 210 Tenn. 565, 360 S.W. 2d 449 (1962).

Article 1. General Provisions

Sec. 1.01. Consolidation of county and city; creation of metropolitan government; name.
Sec. 1.02. Area of metropolitan government.
Sec. 1.03. Two services districts and their areas.
Sec. 1.04. Expansion of urban services district.
Sec. 1.05. Functions within general services district and urban services district.
Sec. 1.06. Departments of metropolitan government.
Sec. 1.07. Term limits.
Sec. 1.08. Mayor's state of metro address.

Article 2. Powers

Sec. 2.01. Specific powers.
Sec. 2.02. General powers.

Article 3. The Metropolitan County Council

Sec. 3.01. Metropolitan county council created; councilmembers-at-large and district councilmembers.
Sec. 3.02. Terms; compensation; age and residence qualification.
Sec. 3.03. Quorum; rules of procedure; presiding officer.
Sec. 3.04. Regular meetings; adjourned meetings; special meetings.
Sec. 3.05. Legislative authority exercised by ordinance; requirements as to, and form of, ordinances.
Sec. 3.06. Authority and power of the council.
Sec. 3.07. No pensions for councilmembers.
Sec. 3.08. Oath of office.

Article 4. The Urban Council

Sec. 4.01. Selection, term and function of the urban council.

Article 5. The Metropolitan County Mayor and Vice Mayor

Sec. 5.01.	**Executive and administrative power; chief executive officer.**
Sec. 5.02.	**Term; qualification; compensation.**
Sec. 5.03.	**Power and authority of mayor.**
Sec. 5.04.	**Mayor's veto power; veto of items in appropriations and budget.**
Sec. 5.05.	**Election of vice mayor; presiding officer of council; succession beyond vice mayor.**
Sec. 5.06.	**Limitation on terms of service.**
Sec. 5.07.	**Pension for mayor.**
Sec. 5.08.	**Oath of office.**

Article 6. The Budgets and Financial Matters

Sec. 6.01.	**Fiscal year.**
Sec. 6.02.	**Preparation of annual operating budget.**
Sec. 6.03.	**Scope of the annual operating budget.**
Sec. 6.04.	**Review and revision of operating budget by mayor; submission to council; budget as public record; distribution of copies.**
Sec. 6.05.	**Hearings by council.**
Sec. 6.06.	**Action by council on operating budget.**
Sec. 6.07.	**Property tax levies.**
Sec. 6.08.	**Allotments of appropriations.**
Sec. 6.09.	**Impoundment of funds.**
Sec. 6.10.	**Additional appropriations.**
Sec. 6.11.	**Transfer of appropriations.**
Sec. 6.12.	**Lapse of appropriations.**
Sec. 6.13.	**Capital improvements budget.**
Sec. 6.14.	**General fund reserve.**
Sec. 6.15.	**Post audit.**

Article 7. Bond Issues

Sec. 7.01.	**Bonds authorized by metropolitan council; purposes of issue.**
Sec. 7.02.	**Definitions.**
Sec. 7.03.	**Costs includable; bonds for furnishings and equipment.**
Sec. 7.04.	**General tax bonds and urban tax bonds.**
Sec. 7.05.	**When bond referendum not required; notice of issue.**
Sec. 7.06.	**Referendum election after petition of protest.**
Sec. 7.07.	**Issuance of bonds under general law.**
Sec. 7.08.	**Limitations on urban bonds.**
Sec. 7.09.	**Amount and purpose; obligations; form issuance.**
Sec. 7.10.	**Metropolitan bonds negotiable and tax exempt.**
Sec. 7.11.	**Refunding bonds.**

Sec. 7.12. Sale.
Sec. 7.13. Temporary financing.
Sec. 7.14. Bonds issued by resolution of council; notice of right to contest.
Sec. 7.15. Bond proceeds constitute trust fund.
Sec. 7.16. Unissued bonds of county or city.
Sec. 7.17. Revenue bonds.
Sec. 7.18. Combined tax and revenue bonds.
Sec. 7.19. Refunding revenue bonds.
Sec. 7.20. Debt service funds.

Article 8. Metropolitan Departments

Chapter 1. Department of Metropolitan Finance

Sec. 8.101. Created; functions.
Sec. 8.102. Director of finance—Qualifications, appointment and compensation.
Sec. 8.103. Same—Powers and duties.
Sec. 8.104. Division of budgets created; functions of budget officer.
Sec. 8.105. Division of accounts created; duties of chief accountant.
Sec. 8.106. Division of treasury created; duties of metropolitan treasurer.
Sec. 8.107. Division of collections created; duties of collections officer.
Sec. 8.108. Division of purchases created; appointment and qualification of purchasing agent.
Sec. 8.109. Function of division of purchases.
Sec. 8.110. Powers and duties of purchasing agent.
Sec. 8.111. Competitive bidding for purchases or sales.
Sec. 8.112. Division of public property administration.

Related Fiscal Provisions

Sec. 8.113. Division of tax assessment created; metropolitan tax assessor.
Sec. 8.114. Compensation, surety bond, oath of office and assistants of tax assessor.
Sec. 8.115. Vacancies in office of tax assessor.
Sec. 8.116. Division of property tax collections created; county trustee designated metropolitan trustee.
Sec. 8.117. Bond of metropolitan trustee.
Sec. 8.118. Powers and duties of county court clerk.
Sec. 8.119. Appointment of deputies of metropolitan trustee and county court clerk.
Sec. 8.120. Date taxes payable; interest and penalty for delinquency.
Sec. 8.121. Division of metropolitan audit.

Chapter 2. Department of Metropolitan Police

Sec. 8.201. Created.
Sec. 8.202. Responsibility and powers of department.
Sec. 8.203. Chief of police as director; his or her powers and duties.
Sec. 8.204. Appointment of director; filling other vacancies in department.
Sec. 8.205. Special police.
Sec. 8.206. School crossing guard division.
Sec. 8.207. Volunteer police reserve authorized.
Sec. 8.208. Qualifications of personnel.
Sec. 8.209. Salaries.
Sec. 8.210. Work week and vacations.

Chapter 3. Department of Fire

Sec. 8.301. Created.
Sec. 8.302. Function of department.
Sec. 8.303. Fire chief as director; powers and duties.
Sec. 8.304. Appointment of director; filling other vacancies in department.
Sec. 8.305. Fire prevention.
Sec. 8.306. Qualifications of personnel.
Sec. 8.307. Salaries.
Sec. 8.308. Work week and vacations.

Chapter 4. Department of Transportation and Multimodal Infrastructure

Sec. 8.401. Created.
Sec. 8.402. Functions.
Sec. 8.403. Supervision, certification, and approval of payment for certain capital improvement projects.
Sec. 8.404. Director of transportation and multimodal infrastructure—Qualifications and compensation.
Sec. 8.405. Same—Powers and duties.
Sec. 8.406. Custody of maps and plans.

Chapter 5. Department of Water and Sewerage Services

Sec. 8.501. Created.
Sec. 8.502. Functions.
Sec. 8.503. Director of water and sewerage services—Qualifications and compensation.
Sec. 8.504. Same—Powers and duties.
Sec. 8.505. Division of billing and collection.
Sec. 8.506. Accounting system.
Sec. 8.507. Revolving funds.
Sec. 8.508. Establishment of and changes in rates.

Chapter 6. Department of Law

Sec. 8.601. Created.
Sec. 8.602. Functions.
Sec. 8.603. Appointment, qualifications, compensation and powers and duties of director of law; designated metropolitan attorney.
Sec. 8.604. Deputy director of law.
Sec. 8.605. Assistant metropolitan attorneys.
Sec. 8.606. Director of law and others not to engage in private practice.
Sec. 8.607. Employment of special counsel restricted and provided for.
Sec. 8.608. Certain personnel of department not under civil service.
Sec. 8.609. Amending Charter references to state statutes.

Chapter 7. Department of Aviation

Sec. 8.701. Created.
Sec. 8.702. Functions.
Sec. 8.703. Director of aviation—Qualifications, appointment and compensation.
Sec. 8.704. Same—Powers and duties.

Article 9. Public Schools

Sec. 9.01. Public school system established.
Sec. 9.02. Board of education—Term and selection of members.
Sec. 9.03. Same—Powers.
Sec. 9.04. Same—Duties; referendum as to school budget.
Sec. 9.05. Same—Employment of director of schools.
Sec. 9.06. Pension rights of educational employees of county and city protected.
Sec. 9.06.1. Benefit increase plan.
Sec. 9.07. Pension and retirement plan for metropolitan teachers; voluntary transfer thereunder of city and county teachers.
Sec. 9.08. Tenure rights of county and city teachers protected.
Sec. 9.09. Disabilities of board members and council members to make adverse contracts or own school warrants.
Sec. 9.10. Civil service as to teachers and other educational employees.
Sec. 9.11. No diversion of funds.
Sec. 9.12. Transfer of school funds within school budget.
Sec. 9.13. Transfers to school fund from general funds; borrowing money.

Sec. 9.14. Acquisition and sale of property.

Article 10. Public Health and Hospitals

Chapter 1. Public Health

Sec. 10.101. Metropolitan board of health—Created.
Sec. 10.102. Same—Qualifications, term and selection of members.
Sec. 10.103. Same—Functions.
Sec. 10.104. Same—Duties.
Sec. 10.105. Director of health and chief medical officer—Appointment and qualifications.
Sec. 10.106. Same—Powers and duties.
Sec. 10.107. Personnel rules and regulations of the board of health.
Sec. 10.108. Budget of metropolitan board of health.
Sec. 10.109. Pension and retirement rights under former county plans.
Sec. 10.110. Civil service medical examiner; civil service examinations.

Chapter 2. Public Hospitals

Sec. 10.201. Metropolitan board of hospitals—Created.
Sec. 10.202. Same—Qualifications, term and selection of members.
Sec. 10.203. Same—Functions.
Sec. 10.204. Director of hospitals—Appointment and qualifications.
Sec. 10.205. Same—Powers and duties.
Sec. 10.206. Personnel rules and regulations of the board of hospitals.
Sec. 10.207. Pension and retirement rights under former city or county plans.

Article 11. Administrative Boards and Commissions

Chapter 1. General Provisions

Sec. 11.101. General provisions control except as specified.
Sec. 11.101.1. Holding over of member after expiration of term; appointment of successor, reappointment.
Sec. 11.102. Qualifications of members.
Sec. 11.103. Quorum.
Sec. 11.104. Regular and special meetings.
Sec. 11.105. Election of chairman, vice-chairman and secretary.
Sec. 11.106. Members to hold no other metropolitan office or position.
Sec. 11.107. By-laws, rules and regulations to be filed with metropolitan clerk.

Sec. 11.108. Employment of personnel.
Sec. 11.109. Removal of members.

Chapter 2. Board of Equalization

Sec. 11.201. Established; members, appointment, qualifications and vacancies.
Sec. 11.202. Powers and duties.
Sec. 11.203. Right of complaint.
Sec. 11.204. Compensation of board members.
Sec. 11.205. General law applicable.

Chapter 3. Electric Power Board

Sec. 11.301. Electric Power Board of Nashville continued as metropolitan agency.

Chapter 4. Nashville Transit Authority

Sec. 11.401. Nashville Transit Authority continued as metropolitan agency.

Chapter 5. Metropolitan Planning Commission

Sec. 11.501. Established.
Sec. 11.502. Number, qualifications, appointment, terms of office and vacancies of members.
Sec. 11.503. Organization; officers; meetings; quorum; business; records.
Sec. 11.504. Powers, duties and responsibilities.
Sec. 11.505. Mandatory referrals to planning commission.
Sec. 11.506. Department of planning; executive director.

Chapter 6. Metropolitan Board of Fair Commissioners

Sec. 11.601. Created; number, qualifications, appointment and term of office of members.
Sec. 11.602. Functions and duties.

Chapter 7. Farmers Market Board

Sec. 11.701. Created; number, qualifications, appointment and term of office of members.
Sec. 11.702. Functions and duties.

Chapter 8. Agricultural Extension Board

Sec. 11.801. Created; number, qualifications, appointment and term of office of members.
Sec. 11.802. Functions and duties.

Chapter 9. Metropolitan Traffic and Parking Commission

Sec. 11.901. Created; qualifications, term and selection of members.

Sec. 11.902. Secretary.
Sec. 11.903. Chief traffic engineer.
Sec. 11.904. Function of commission as to traffic regulation.
Sec. 11.905. Commission's review of proposed ordinances.
Sec. 11.906. Publication of traffic rules and regulations.
Sec. 11.907. Management and control of parking meters, garages and other traffic facilities.
Sec. 11.908. Powers of commission by private act and ordinance continued.

Chapter 10. Metropolitan Board of Parks and Recreation

Sec. 11.1001. Established; qualifications, term and selection of members.
Sec. 11.1002. Powers and duties.
Sec. 11.1003. Director of parks and recreation—Qualifications.
Sec. 11.1004. Same—Powers and duties.
Sec. 11.1005. Police protection for parks.

Chapter 11. Metropolitan Social Services Commission

Sec. 11.1101. Created; qualifications, term and selection of members.
Sec. 11.1102. Powers and duties.
Sec. 11.1103. Director of social services.

Chapter 12. Public Library

Sec. 11.1201. Public library provided for.
Sec. 11.1202. Public library board—Term and selection of members.
Sec. 11.1203. Same—Powers and duties.
Sec. 11.1204. Chief librarian.
Sec. 11.1205. Public library budget.

Chapter 13. Community Oversight Board

Sec. 11.1301. Created; qualifications, terms and selection of members.
Sec. 11.1302. Powers and duties.
Sec. 11.1303. Support staff and personnel.

Article 12. Civil Service

Sec. 12.01. Personnel policy and administration established.
Sec. 12.02. Civil service commission—Number, qualifications, selection and term of members.
Sec. 12.03. Same—Duties.
Sec. 12.04. Director of personnel.

Sec. 12.05.	**Selection and dismissal of metropolitan employees; limitation on number of positions held.**
Sec. 12.06.	**Adoption of rules by civil service commission.**
Sec. 12.07.	**Substantive content of rules of the commission.**
Sec. 12.08.	**Positions in classified service and in unclassified service.**
Sec. 12.09.	**Civil service commissions for board of health, board of hospitals and board of education.**
Sec. 12.10.	**Adoption of classification and general pay plan.**
Sec. 12.11.	**Offenses against civil service and disabilities of civil service employees.**
Sec. 12.12.	**Continuance of existing civil service rights of county and city employees.**
Sec. 12.13.	**Pay plan for employees of metropolitan police department and fire department.**

Article 13. System of Employee Benefit Plans

Sec. 13.01.	**Adoption.**
Sec. 13.02.	**Metropolitan employee benefit board—Created.**
Sec. 13.03.	**Same—Composition and selection of board; terms and qualifications of members.**
Sec. 13.04.	**Investments committee.**
Sec. 13.05.	**Duties of metropolitan employee benefit board.**
Sec. 13.06.	**Study and formulating committee; preparation, consideration and adoption of plan for employee benefits; subsequent committees provided for.**
Sec. 13.07.	**Eligibility of officers and employees of metropolitan government.**
Sec. 13.08.	**Exclusion of certain persons.**
Sec. 13.09.	**Continuing rights under retirement plans of former City of Nashville or former County of Davidson.**
Sec. 13.09.1.	**Benefit increase plan.**
Sec. 13.10.	**Retirement plans to be actuarially sound.**
Sec. 13.11.	**Separate funds; payments from funds; reports.**
Sec. 13.12.	**Expense for treatment of accidental injury in course of employment to be borne by metropolitan government.**
Sec. 13.13.	**Death benefits.**

Article 14. Metropolitan General Sessions Court

Sec. 14.01.	Created; parts.
Sec. 14.02.	Jurisdiction and authority; justices of the peace divested of certain jurisdiction and authority.
Sec. 14.03.	Trial upon plea of guilty or waiver of indictment, presentment of grand jury investigation and jury trial.
Sec. 14.04.	Judges—Number; qualifications.
Sec. 14.05.	Same—Election; term of office.
Sec. 14.06.	Same—Oath of office.
Sec. 14.07.	Same—Compensation; restrictions on practice of law.
Sec. 14.08.	Same—Retirement benefits; removal from office.
Sec. 14.09.	Same—Jurisdiction, authority and powers generally.
Sec. 14.09A.	Same—Presiding judge.
Sec. 14.09B.	Separate dockets to be kept for civil, criminal and traffic cases.
Sec. 14.10.	Public defender—Qualifications; selection; term; duties.
Sec. 14.11.	Same—Compensation; appointment, qualifications and duties of assistants.
Sec. 14.12.	Designation of special judge when judge unable to hold court.
Sec. 14.13.	Filling of vacancies in office of judge.
Sec. 14.14.	Service of process.
Sec. 14.15.	Cost bond or cash deposit required in civil cases; exceptions; schedule of deposits.
Sec. 14.16.	Bail in misdemeanor cases.
Sec. 14.17.	Rules and regulations for bondsmen; rules for release of persons on own recognizance bonds and deposit of driver's license.
Sec. 14.18.	Persons authorized to prosecute cases before court.
Sec. 14.19.	Court administrator.
Sec. 14.20.	Clerks—How furnished; chief deputy clerks; compensation; bonds.
Sec. 14.21.	Same—Powers of deputy clerks.
Sec. 14.22.	Costs and fees.
Sec. 14.23.	Disposition of monies and receipts.
Sec. 14.24.	Court officers.
Sec. 14.25.	Probation department or division authorized.
Sec. 14.26.	Appeals.
Sec. 14.27.	Court to take judicial notice of Charter and general and urban services districts.
Sec. 14.28.	Rules of court.
Sec. 14.29.	Transfer of files, dockets, funds, suits, etc., from former courts.

Sec. 14.30. Severability of provisions.
Sec. 14.31. Continuation of office of public defender.
Sec. 14.32. Continuation of juvenile court; jurisdiction of metropolitan general sessions court limited in juvenile matters.

Article 15. Elections and Removal of Officers

Sec. 15.01. When general metropolitan elections held; who may vote; qualifications of candidates.
Sec. 15.02. Vote required for election in metropolitan elections; runoff elections.
Sec. 15.03. Elections subsequent to vacancies.
Sec. 15.04. Applicability of general election laws.
Sec. 15.05. Ouster of metropolitan officers.
Sec. 15.06. Recall of metropolitan officers.
Sec. 15.07. Procedure in general.
Sec. 15.08. Holding the recall election.
Sec. 15.09. Recall election results—Votes required for election—Runoff election.
Sec. 15.10. Failure to qualify—Tie vote.

Article 16. Functions of Constitutional and County Officers

Sec. 16.01. County judge.
Sec. 16.02. County court clerk.
Sec. 16.03. Duties of metropolitan government to certain state and county officers recognized.
Sec. 16.04. Reserved.
Sec. 16.05. Sheriff.

Article 17. Public Utility Franchises

Sec. 17.01. Irrevocable franchises granted only by ordinance.
Sec. 17.02. Granting ordinances to be ratified at election.
Sec. 17.03. Restrictions on all future public utility franchises and reserved powers of metropolitan government.
Sec. 17.04. General requirements.
Sec. 17.05. Acquiring property of public utility by condemnation.
Sec. 17.06. Recognition of franchises granted by county or city.
Sec. 17.07. Regulation of street railway companies.
Sec. 17.08. Limited scope of article.

Article 18. Miscellaneous Provisions

Sec. 18.01. Metropolitan clerk.
Sec. 18.02. Enactment, revisions, modification or changes of zoning regulations.

Sec. 18.03. Board of zoning appeals.
Sec. 18.04. Nashville Housing Authority.
Sec. 18.05. Change in salary of metropolitan officers.
Sec. 18.06. Redistricting of councilmanic districts.
Sec. 18.07. Titles and subtitles not part of Charter.
Sec. 18.08. Regulation and sale of alcoholic beverages not affected by Charter.
Sec. 18.09. Federal, state and other aid.
Sec. 18.10. Metropolitan agencies authorized to compel attendance of witnesses and production of documents.
Sec. 18.11. Authorization to council with respect to certain special appropriations.
Sec. 18.12. No appropriation authorized from budget of general services district to finance certain deficits.
Sec. 18.13. Councilmembers disqualified for membership on certain boards and commissions.
Sec. 18.14. Fidelity bonds.
Sec. 18.15. Status of smaller cities and voluntary surrender of their charters; creation of suburban utility districts.
Sec. 18.16. County executive committees for political parties.
Sec. 18.17. Authority to deal with state and federal agencies as to specific governmental services.

Article 19. Amending Charter

Sec. 19.01. Amending the Charter.
Sec. 19.02. Amendment by council resolution.
Sec. 19.03. Amendment by petition.
Sec. 19.04. Referendum election.
Sec. 19.05. Charter revision commission authorized.
Sec. 19.06. Implementation and strict construction.

Article 20. Transition and Effective Date

Sec. 20.01. Certain ordinances and resolutions continued.
Sec. 20.02. Zoning regulations continued.
Sec. 20.03. Property rights, contracts, obligations, causes of action and legal proceedings continued.
Sec. 20.04. Proceedings before county and city agencies continued.
Sec. 20.05. Rules and regulations continued.
Sec. 20.06. Employees and their civil service status continued.
Sec. 20.07. Transfer of records and equipment.
Sec. 20.08. Certain metropolitan officers appointed.

Sec. 20.09.	**Director and assistant director of department of public works.**
Sec. 20.10.	**Division of public roads and director thereof.**
Sec. 20.11.	**Certain members of county highway patrol and of the park police appointed.**
Sec. 20.12.	**Certain civil service employees transferred to metropolitan department of law.**
Sec. 20.13.	**Appointments to administrative boards and commissions; former boards and commissions continued.**
Sec. 20.14.	**Transitional provisions as to public schools.**
Sec. 20.15.	**Transition as to fiscal and related matters.**
Sec. 20.16.	**Transitional provisions as to civil service.**
Sec. 20.17.	**Transitional provisions as to employee benefits.**
Sec. 20.18.	**Transition as to quarterly county court.**
Sec. 20.19.	**Compensation and pension rights of city mayor and city councilmembers preserved.**
Sec. 20.20.	**Special metropolitan election and term of office of persons then elected.**
Sec. 20.21.	**Effective date of Charter.**

Article 21. Intent of Charter and Separability of Provisions

Sec. 21.01.	**Generally.**

Appendices to Charter

Appendix One.	**Description of Boundaries of Urban Services District**
Appendix Two.	**Description of Thirty-Five Metropolitan Councilmanic Districts [and Nine School Districts]**
Appendix Three.	**Electric Power Board**
Appendix Four.	**Transit Authority**

ARTICLE 1. GENERAL PROVISIONS

Sec. 1.01. Consolidation of county and city; creation of metropolitan government; name.

The governmental and corporate functions now vested in the City of Nashville, a municipal corporation created by Chapter 246, Private Acts of 1947, and amendments thereto, are hereby consolidated with the governmental and corporate functions of the County of Davidson, such consolidation being pursuant to constitutional power granted by article XI, section 9 of the Constitution of Tennessee, as amended, and in conformity with section 7-1-101 et seq. of Tennessee Code Annotated, as amended. Said consolidation shall result in the creation and establishment of a new metropolitan government to perform all, or substantially all, of the governmental and corporate functions previously performed by the county and by the city, to be known as "The Metropolitan Government of Nashville and Davidson County," herein sometimes called "the metropolitan government." The metropolitan government shall be a public corporation, with perpetual succession, capable of suing and being sued, and capable of purchasing, receiving and holding property, real and personal, and of selling, leasing or disposing of the same to the same extent as other governmental entities. (Res. No. 88-526, § 1, 10-4-88)

Sec. 1.02. Area of metropolitan government.

The territory embraced in the metropolitan government shall be the total area of Davidson County, as the same may be fixed and established upon the effective date of this Charter.[1]

1. April 1, 1963.

Sec. 1.03. Two services districts and their areas.

The metropolitan government shall, within the geographical limits thereof, comprise two (2) service districts, to wit: A general services district and an urban services district, as to both of which districts the metropolitan government shall have jurisdiction and authority. The general services district shall consist of the total area of the metropolitan government, the same being the total area of Davidson County as fixed and established upon the effective date of this Charter.[2] The urban services district shall consist originally of the total area of the City of Nashville at the time of the filing of this Charter with the county commissioners of election, which area is more specifically described and set forth in Appendix One hereto.

2. April 1, 1963.

Sec. 1.04. Expansion of urban services district.

The area of the urban services district may be expanded and its territorial limits extended by annexation whenever particular areas of the general services district come to need urban services, and the metropolitan government becomes able to provide such service within a reasonable period, which shall not be greater than one (1) year after ad valorem taxes in the annexed area become due. The tax levy on property in areas hereafter annexed shall not include any item for the payment of any deficit in the pension or retirement funds of the former City of Nashville. Said tax levy shall not include any item (except pursuant to and subject to the provisions of Section 7.04 of this Charter), for the payment of urban bonds of the metropolitan government issued prior to the effective date of such annexation, or debts of the former City of Nashville allocated to the urban services district under section 7.20 of this Charter, except to the extent that it shall be found and determined by the metropolitan county council that the property within the newly annexed area will benefit, in the form of urban services, from the expenditures for which the debt, or a specified portion of the debt, was incurred, to substantially the same extent as the property within the urban services district as same existed prior to such annexation.

Annexation shall be based upon a program set forth in the capital improvements budget provided for by section 6.13. Such annexation shall be accomplished and the validity of the same may be contested, by the methods and procedures specified in Tennessee Code Annotated, sections 6-51-101 to 6-51-105, with respect to annexation by municipalities. (Res. No. 88-526, § 2, 10-4-88)

Sec. 1.05. Functions within general services district and urban services district.

The metropolitan government may exercise within its general services district those powers and functions which have heretofore been exercised by the County of Davidson or the City of Nashville, or both, and shall supply the residents of said general services district with those governmental services which are now, or hereafter may be, customarily furnished by a county government in a metropolitan area.

The metropolitan government may exercise within its urban services district those powers and functions which have heretofore been exercised by the City of Nashville or the County of Davidson, and shall supply the residents of said urban services district with those kinds of

governmental services which are now, or hereafter may be, customarily furnished by a city government in a metropolitan area.

The functions of the metropolitan government to be performed, and the governmental services to be rendered throughout the entire general services district shall include: general administration, police; courts, jails; assessment; health; welfare; hospitals; housing for the aged; streets and roads; traffic; schools; parks and recreation; library; auditorium, fairgrounds; airport; public housing; urban redevelopment; urban renewal; planning; electrical code; building code; plumbing code; housing code; electricity; transit; refuse disposal; beer supervision; and taxicab regulation.

The additional functions of the metropolitan government to be performed and the additional governmental services to be rendered within the urban services district shall include: additional police protection; fire protection; water; sanitary sewers; storm sewers; street lighting; street cleaning; refuse collections and wine and whiskey supervision.

Nothing in the foregoing enumeration and assignment of functions shall be construed to require the continued maintenance or furnishing of any governmental service which the council by ordinance has determined to be obsolete and unnecessary.

Nothing in this section shall be deemed to limit the power of the metropolitan government to exercise other governmental functions in either the urban services district or the general services district, or to provide new and additional governmental services in either the urban services district or the general services district.

Sec. 1.06. Departments of metropolitan government.

The governmental and corporate authority of the metropolitan government shall be vested in a metropolitan county mayor, who shall be the chief executive officer; a metropolitan county council, which shall be the chief legislative body; an urban council, which shall levy a property tax within the urban services district; the judges of the metropolitan court; the justices of the peace; the departments, boards and commissions herein provided; and such officers, agencies, boards and commissions as may be provided by the Constitution or general laws of the State of Tennessee, or by ordinance enacted pursuant to this Charter.

Sec. 1.07. Term limits.

A. No person elected and qualified to the office of mayor, vice mayor, district councilmember, or councilmember-at-large shall be eligible for the succeeding term in the same office if such person has served more than one-half of a four (4) year term and a consecutive complete four (4) year term in that particular office. For purposes of this section, the offices of district councilmember and councilmember-at-large, as established pursuant to section 3.01 of this Charter, shall be considered separate elected offices.

B. In January prior to each state legislative session until such a time that it can be certified that the legislative term limits described in this clause have been enacted, the clerk shall write all state legislators whose districts include any part of Davidson County stating that the people of Davidson County desire an opportunity to vote on legislative term limits. The people of Davidson County respectfully request that a proposed constitutional amendment limit each Representative to six (6) years (three (3) terms) in the Tennessee House of Representatives and eight (8) years (two (2) terms) in the Tennessee Senate. The people of Davidson County also instruct all state legislators representing any part of Davidson County to pass this proposed constitutional amendment and place it on the general election ballot.

C. In January of each year until such a time that it can be certified that the term limits described in this clause have been enacted, the clerk shall write all U.S. Representatives whose districts include any part of Davidson County's limits and both federal Senators stating that the people of this municipality support term limits for the U.S. Congress. The people of Davidson County respectfully request that a proposed federal constitutional amendment limit each Representative to six (6) years (three (3) terms) in the United States House of Representatives and twelve (12) years (two (2) terms) in the United States Senate. The people of Davidson County also instruct their federal delegation to pass a constitutional amendment imposing these limits and submit it to the states for ratification.

D. If any provision of this petition shall be held unconstitutional, invalid or inapplicable to any persons or circumstances, then it is intended and declared by the people of Davidson County that all other provisions of this petition and their application to all other persons and circumstances shall be severable and shall not be affected by such decision. (Amended by Res. No. RS2008-404, § 1(Amdt. 2), referendum election 11-4-08; amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—Section 1.07 was added by referendum election held November 8, 1994.

Sec. 1.08. Mayor's state of metro address.

Not later than May 25 of each calendar year, the mayor shall personally address the metropolitan council on the state of the Metropolitan Government of Nashville

and Davidson County in a metropolitan facility at a specially called meeting of the council that shall be open to the public. Such meeting, the date and time of which shall be set by the council by resolution, shall be solely for the purpose of receiving the mayor's address, and no other official business shall be conducted at such meeting. Such special meeting may be convened without the presence of a quorum of the council. (Added by Res. No. RS2006-1487 (Amdt. 1), referendum election November 7, 2006, Amdt. 2)

ARTICLE 2. POWERS

Sec. 2.01. Specific powers.

The metropolitan government of Nashville and Davidson County shall have power:

1. To levy and collect taxes upon all property excepting only property exempt from taxation by general law.

2. To levy and collect taxes upon all taxable privileges and to license and regulate such privileges and privileged occupations.

3. To make appropriations for the support of the metropolitan government, for any other purpose authorized by this Charter and for any purpose for which a county or city is authorized by general law to appropriate; and to provide for the payment of the debts and expenses of the metropolitan government and also the debts and expenses of the county and the city of which it is the successor.

4. To borrow money for the purposes and in the manner provided by article 7, or other provisions of this Charter.

5. To purchase, lease, construct, maintain or otherwise acquire, hold and operate any building or other property, real or personal, for any public purpose, and to sell, lease or otherwise dispose of any property, real or personal, belonging to the metropolitan government.

6. To establish, maintain and regulate, free of sectarian influences, a system of free schools.

7. To make regulations to secure the general health of the inhabitants and to prevent, abate and remove nuisances.

8. To lay out, open, extend, widen, narrow, establish or change the grade of, close, construct, pave, curb, gutter, adorn with shade trees, otherwise improve, maintain, repair, clean and light streets, roads, alleys and walkways of the metropolitan government.

9. To provide for the creation, maintenance, building or purchase and operation of waterworks, electric power system, gas plants, transportation facilities, public airports, and any other public utility, including sewers and a sewage disposal system; to fix such rates and provide for the making of such charges and assessments as are deemed necessary for the proper furnishing of such services; and to provide liens or penalties and withdrawal of service for refusal or failure to pay same.

10. To provide for the prevention and punishment of vice, obscenity, immorality, vagrancy, drunkenness, riots, disturbances, disorderly houses, bawdy houses, gambling and gambling houses, lewd exhibitions, disorderly conduct, the carrying of concealed weapons, and breaches of the peace.

11. To regulate or prohibit junk dealers; pawnshops; the manufacture, sale or transportation of intoxicating liquors, the use and sale of firearms, the use and sale of firecrackers, fireworks and to regulate the transportation, storage and use of combustible, explosive and inflammable materials, the use of lighting and heating equipment, and any other business or situation which may be dangerous to persons or property.

12. To provide for the taking and appropriation of real property within the area of the metropolitan government for any public purpose, when the public convenience requires it and in accordance with the provisions of Tennessee Code Annotated, section 29-16-101 et seq.

13. To provide and maintain a system of pensions and retirement for officers and employees of the metropolitan government and of the county and the city to which it is successor.

14. To accept or refuse gifts, donations, bequests or grants from any source for any purpose related to the powers and duties of the metropolitan government.

15. To establish, maintain and operate public hospitals, sanatoria, convalescent homes, clinics and other public institutions, homes and facilities for the care of the sick, of children, the aged and the destitute.

16. To establish, maintain and operate a jail and a workhouse.

17. To make special assessments within the urban services district, pursuant to Tennessee Code Annotated, sections 7-32-101 through 7-32-141.

18. To acquire, own, maintain and operate public parks and playgrounds, and to equip and improve them with all suitable devices, buildings and other structures.

19. To collect and dispose of garbage and other refuse within the urban services district, and to regulate the collection and provide for disposal of garbage and other refuse within the general services district.

20. To provide, or aid in the support of public libraries.

21. To regulate the erection of buildings and all other structures, to compel the owner to provide and maintain fire escapes and other safety features, and to provide fire districts or zones and building zones; to

prohibit, regulate or suppress, or provide for the destruction and removal of any building or other structure which may be or become dangerous or detrimental to the public.

22. To fix the fares or rates to be charged for carriage of persons and property by any vehicle held out to the public use for hire within the area of the metropolitan government and not operated over a fixed route; to require indemnity bonds issued by surety companies or indemnity insurance policies to be filed by the owner or operator of such vehicle for the protection of any person against loss by injury to person or property; and to make all needful regulations with respect to the operation of such vehicles.

23. To grant rights-of-way through the streets and roads, and over the bridges and viaducts, for the use of public utilities.

24. To improve and preserve the navigation of the Cumberland River, within the metropolitan government; to erect, repair and regulate public wharfs, docks and landings, and to fix the rate of wharfage thereat; to regulate ferries; and to regulate the stationary anchorage and the mooring of vessels or rafts.

25. To regulate zoning.

26. To establish standard weights and measures; and to provide standards of quality for all food products used for human consumption.

27. To provide for the inspection and weighing or measuring of lumber, building material, stone, coal, wood, fuel, hay, corn and other grain.

28. To regulate, tax, license or suppress the keeping and going at large of animals, including domestic fowl; and to impound the same and in default of redemption to sell or kill the same.

29. To provide for the protection of animals and children, and to prevent cruelty to same.

30. To regulate the operation of motor vehicles and exercise control over all traffic, including parking, upon or across the streets, roads, alleys and walkways of the metropolitan government.

31. To regulate, by license or otherwise, plumbers and electricians and plumbing and electrical work.

32. To examine and license stationary engineers engaging in operating steam plants within the metropolitan government.

33. To regulate the emission of smoke, the installation and maintenance of fuel-burning equipment, and the methods of firing and stoking furnaces and boilers.

34. To regulate the operations, fees and services of private fire departments maintained outside the area of the urban services district; and to enter into contracts for the furnishing of fire protection outside the urban services district.

35. To collect service charges to defray installation and operation costs for furnishing services beyond the limits of the urban services district when such services are a function of the urban services district.

36. To create, alter or abolish departments, boards, commissions, offices and agencies other than those specifically established by this Charter,[4] and to confer upon the same necessary and appropriate authority for carrying out of all powers, including the promulgation of building, plumbing, zoning, planning and other codes; but when any power is vested by this Charter in a specific officer, board, commission or other agency, the same shall be deemed to have exclusive jurisdiction within the particular field.

37. To enter into contracts and agreements with other governmental entities and also with private persons, firms and corporations with respect to furnishing by or to the other services and the payments to be made therefor.

38. To determine such offices for which bond shall be required and the amount thereof.

39. To provide penalties for violations of any ordinance adopted pursuant to the authority of this Charter or of general law.

40. To pass all ordinances necessary for the health, convenience, safety and general welfare of the inhabitants, and to carry out the full intent and meaning of this Charter, as fully as if specifically authorized. (Res. No. 88-526, §§ 3, 4, 10-4-88)

4. Constable is a constitutional officer, and office cannot be abolished by metropolitan government. Glasgow v. Fox, 214 Tenn. 656, 383 S.W. 2d 9 (1964).

Sec. 2.02. General powers.

In addition to other powers herein granted, the metropolitan government shall be vested with (1) any and all powers which cities are, or may hereafter be, authorized or required to exercise under the Constitution and general laws of the State of Tennessee, as fully and completely as though the powers were specifically enumerated herein, except only for such limitations and restrictions as are provided in Tennessee Code Annotated, section 7-1-101 et seq., as amended, or in this Charter; and (2) any and all powers which counties are, or may hereafter be, authorized or required to exercise under the Constitution and general laws of the State of Tennessee, as fully and completely as though the powers were specifically enumerated herein, except only for such limitations and restrictions as are provided in Tennessee Code Annotated, section 7-1-101 et seq., as amended, or in this Charter; and (3) any and all powers possessed by the County of Davidson or the City of Nashville

immediately prior to the effective date of this Charter. (Res. No. 88-526, § 5, 10-4-88)

ARTICLE 3. THE METROPOLITAN COUNTY COUNCIL

Sec. 3.01. Metropolitan county council created; councilmembers-at-large and district councilmembers.

The legislative authority of the metropolitan government of Nashville and Davidson County, except as otherwise specifically provided in this Charter, shall be vested in the metropolitan county council, sometimes hereinafter called "Council," which shall have a total membership of forty (40), including five (5) councilmembers-at-large, and thirty-five (35) district councilmembers. The entire electorate of the metropolitan government shall elect the five (5) councilmembers-at-large and each of the thirty-five (35) councilmanic districts shall elect one (1) district councilmember. There shall be thirty-five (35) councilmanic districts in the metropolitan government, which are hereby created and established in accordance with the detailed descriptions thereof by metes and bounds as set forth in Appendix Two hereto attached as a part of this Charter. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 3.02. Terms; compensation; age and residence qualification.

Members of the council shall serve for a term of four (4) years and until their successors are elected and qualified; and shall be compensated at the rate of three hundred ($300) dollars per month. No person shall be eligible to serve as councilmember-at-large or district councilmember unless he or she shall have attained the age of twenty-five (25) at the beginning of his or her term and unless he or she shall have been a resident of the area of the metropolitan government for a period of one (1) year and shall continue to reside therein during his or her period of service. No person shall be eligible to serve as district councilmember unless he or she shall have been a resident of the district for which elected for a period of six (6) months and shall continue to reside therein during his or her period of service. Members of the council shall hold no other elective or appointive office in the metropolitan government or employment by said government, except as expressly provided in this Charter. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 3.03. Quorum; rules of procedure; presiding officer.

Not less than two-thirds (2/3rds) of all the members to which the council shall be entitled shall constitute a quorum for the transaction of business. The council may determine its rules of procedure. The vice county mayor shall be the presiding officer of the council, but without vote therein, except in the event of a tie vote, when he or she may cast the deciding vote. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 3.04. Regular meetings; adjourned meetings; special meetings.

The council shall hold regular meetings only on the first and third Tuesday of each month and may hold an adjourned meeting of a regular meeting on any week day or hour it may fix. At such adjourned meeting the council may transact any business which it might transact at a regular meeting. Special meetings of the council may be held when called by the mayor or vice mayor and shall be called by either official when the public welfare requires it or when requested in writing by a majority (21) of the members of the council. At least forty-eight (48) hours' written notice shall be given for any special meeting, stating the object or objects thereof, and the business of such meeting shall be restricted to the objects so stated. All meetings of the council shall be open to the public and shall be held in a metropolitan building unless by reasons of casualty a different meeting place shall be selected, with public announcement thereof.

Editor's note—The amendment to § 3.04 was approved at an election held Aug. 4, 1983.

Sec. 3.05. Legislative authority exercised by ordinance; requirements as to, and form of, ordinances.

The council shall exercise its legislative authority only by ordinance, except as otherwise specifically provided by this Charter or by general law. No ordinance shall become effective until it shall have passed by a majority vote on three (3) different days, on the final passage of which it shall have received a majority vote of all the members to which the council is entitled and until it shall have been signed by the metropolitan county mayor or become a law without his or her signature as otherwise provided in article 5 hereof. On final passage of an ordinance or resolution, a vote shall be taken by ayes and noes, and the names of the councilmembers voting for or against the same shall be entered on the minutes. Each ordinance shall begin "Be it enacted by the Council of the Metropolitan Government of Nashville and Davidson County", and no

ordinance shall take effect until twenty (20) days after its passage, unless the same shall state that the welfare of the metropolitan government of Nashville and Davidson County requires that it should take effect sooner. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 3.06. Authority and power of the council.

The council is authorized to legislate with respect to the powers of the metropolitan government granted by article 2 hereof, except as otherwise provided in this Charter; and by ordinance to provide for the organization, conduct and operations of all departments, boards, commissions, offices and agencies of the metropolitan government, when the same has not been provided for by this Charter.

In addition to the foregoing and in aid of its legislative function, the council is authorized by resolution passed by a three-fourths (3/4ths) majority of its entire membership and not subject to the veto power of the mayor to conduct investigations by the whole council or any of its committees; to employ and compensate personnel necessary for such purpose; and to make appropriations therefor.

Sec. 3.07. No pensions for councilmembers.

Members of the council shall not be eligible to receive and shall not receive any pension by reason of their service as members of said council.

Nothing in this section shall be deemed to abrogate or diminish the obligation of the metropolitan government to pay pensions to those persons who upon the effective date of this Charter are entitled to receive pensions by reason of their years of service as councilmembers of the City of Nashville or who upon the expiration of the terms for which they have been elected as such councilmember would become entitled to receive such pensions. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 3.08. Oath of office.

Each person who shall be elected as a member of council, shall, before entering on the duties of that office, take an oath to support the Constitution of this State, the Constitution of the United States, and the Charter of the Metropolitan Government of Nashville and Davidson County. (Added by Res. No. RS2018-1314 (Amdt. D), referendum election November 6, 2018, Amdt. 4)

ARTICLE 4. THE URBAN COUNCIL

Sec. 4.01. Selection, term and function of the urban council.

The urban services district shall be and constitute a municipal corporation, with a three member urban council, whose sole function shall be a mandatory obligation to levy a property tax adequate with other available funds to finance the budget for urban services, as determined by the metropolitan council. The members of the urban council shall be those three (3) individuals elected to the metropolitan council as councilmembers-at-large who receive the highest votes, who reside within the area of the urban services district, then they shall constitute the urban council; and if less than three councilmembers-at-large reside in the urban services district, they shall be members of the urban council, together with other members selected by the metropolitan council from its own membership so as to constitute a three member urban council. Members of the urban council so chosen by the metropolitan council shall be members a portion of whose district lies within the area of the urban services district. The term of members of the urban council shall be co-extensive with the term of the members of the metropolitan council. Vacancies in the membership of the urban council shall be filled by the metropolitan council, which shall elect to any such vacancy one of its own members a portion of whose district lies within the area of the urban services district.

The urban council shall meet immediately following any meeting of the metropolitan council, at which an annual budget is adopted or amended, or at which the annual tax rate for the general services district is adopted or amended. The minutes for the urban council shall be kept by the metropolitan clerk. (Amended by referendum election of November 6, 2018, Amdt. 6)

ARTICLE 5. THE METROPOLITAN COUNTY MAYOR AND VICE MAYOR

Sec. 5.01. Executive and administrative power; chief executive officer.

The executive and administrative power of the metropolitan government shall be vested in and exercised by a metropolitan county mayor and such other departments, boards, commissions, officers and agencies as are created or authorized in this Charter. The metropolitan county mayor, sometimes hereinafter called "mayor," shall be responsible for the conduct of the executive and administrative work of the metropolitan government and for the law enforcement within its boundaries.

Sec. 5.02. Term; qualification; compensation.

The mayor shall be elected for a term of four (4) years and until his or her successor is elected and qualified. He or she shall have attained the age of thirty (30) at the beginning of his or her term and shall have been a resident of the area of the metropolitan government for at least three (3) years preceding his or her election and shall continue to reside therein during his or her period of service. He or she shall be compensated at the rate of twenty-five thousand ($25,000) dollars per annum, payable semimonthly. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 5.03. Power and authority of mayor.

The mayor is authorized to administer, supervise and control all departments created by this Charter, except as otherwise specifically provided, and also all departments created by ordinance pursuant hereto. Such administration shall be by and through departmental directors under the supervision and control of the mayor.

Except as otherwise provided in this Charter, the mayor shall appoint all directors of departments, subject to limitations of civil service provided by this Charter, if any. All departmental directors not under civil service limitations appointed by the mayor shall be confirmed by the council and may be removed by the mayor as provided herein or in the creating ordinance.

The mayor shall appoint all members of boards and commissions created by this Charter or by ordinance enacted pursuant hereto, except as otherwise specifically provided, and he or she shall fill vacancies on said boards and commissions. Appointments to membership on boards and commissions shall not require confirmation by the council except as the same may be specifically required by this Charter or by ordinance creating such board or commission.

The mayor shall have and may exercise, in person or through agent, all the powers of a fiscal agent and financial officer heretofore possessed by the county judge of Davidson County, acting either under general law or private act. The mayor shall also be vested with and possess all executive powers and functions, exclusive of judicial functions, heretofore performed by the county judge under general law or private act except to the extent that such powers and functions may be vested in other officers or agencies by the provisions of this Charter; and also shall be vested with and possess all executive powers and functions hereafter vested by general law in the office of the county judge.

The mayor shall be authorized at any reasonable time to examine and inspect the books, records, and official papers of any department, board, commission, officer or agency of the metropolitan government; and to attend the meeting of any board or commission and make suggestions thereto.

The mayor is authorized to require any department, board, commission, officer or agency to submit to him or her written reports and information in connection with the business and affairs of the metropolitan government which the same handles or administers; and he or she shall, from time to time, submit reports and recommendations to the council with respect to the financial condition, other business and general welfare of the metropolitan government.

The mayor shall submit an annual budget as provided for in article 6 of this Charter.

The mayor is authorized to call special meetings of the council as provided for in section 3.04 of this Charter. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 5.04. Mayor's veto power; veto of items in appropriations and budget.

The mayor is authorized to approve or to disapprove ordinances and resolutions adopted by the council and no ordinance or resolution shall become effective without his or her approval except as herein provided. Every ordinance or resolution adopted by the council shall be presented to the mayor for his or her consideration. If he or she approves, he or she shall sign the same, and it shall become effective according to the terms thereof. If he or she disapproves, he or she shall return the same to the council without his or her signature, which return may be accompanied by a message indicating the reasons for his or her disapproval. Any resolution or ordinance so disapproved shall become effective when subsequent to its return it shall be adopted by two-thirds (2/3rds) of all the members to which the council is entitled, with the ayes and noes and the names of the councilmembers voting for and against the same entered on the minutes. Every resolution or ordinance shall become effective unless the same be approved or disapproved by the mayor and returned to the council at or prior to the next regular meeting of the council occurring ten (10) days or more subsequent to the date when the same was delivered to his or her office for consideration.

The mayor, while approving other portions of an ordinance, may reduce or disapprove the sum of money appropriated by any one or more items, or parts of items, in any ordinance appropriating money, except for debt service, employee benefits or independent audits, such power to be exercised with return of the ordinance to the council within the time prescribed for disapproval of ordinances generally, accompanied by written explana-

tion of the reasons for disapproval or reduction. The one or more items or parts of items disapproved or reduced shall be void to the extent that they have been disapproved or reduced unless any such item or parts of items so disapproved or reduced shall be restored to the ordinance in the original amount and become effective by adoption by the council according to the rules and limitations prescribed for the passage of other ordinances over the mayor's veto. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 5.05. Election of vice mayor; presiding officer of council; succession beyond vice mayor.

The vice mayor shall be elected for a term of four (4) years and until his or her successor is elected and qualified. He or she shall possess the qualifications of the mayor and shall be compensated at the rate of forty-two hundred ($4,200) dollars per annum, payable semi-monthly. In the event the office of mayor becomes vacant, the vice mayor shall serve as mayor and be compensated as such until the vacancy is filled as provided in section 15.03 of this Charter. If the vice mayor becomes unable or unwilling to serve as mayor, the council shall nominate and elect a successor to serve as mayor until a mayor is subsequently qualified and elected. The successor:

A. shall be elected by winning a majority of votes, where "majority" is defined as one vote more than half of all the members to which the council is entitled with the exception of any seat which is vacant. If no nominee receives a majority of the votes, the nominee who receives the lowest number of votes shall be eliminated (or, in the event of a tie for last place, all nominees obtaining that number of votes shall be eliminated) and another round of voting shall be held. This process will continue until a nominee receives a majority of votes. In the event of a tie where all candidates receive the same number of votes, a ten-minute recess shall be called and another vote shall be held with the same nominees eligible to receive votes;

B. shall be legally qualified to hold office as mayor per Section 5.02 of this Charter; and

C. shall not be eligible to file a nominating petition for the subsequent election for mayor or the subsequent election for vice mayor. (Amended by Res. No. RS2018-1314 (Amdt. A), referendum election November 6, 2018, Amdt. 2)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 5.06. Limitation on terms of service.

No mayor elected and qualified for two (2) consecutive four (4) year terms, in accordance with section 1.07 of the Metropolitan Charter, which limits holders of elected office authorized or created by this Charter to two (2) consecutive terms, shall be eligible for the succeeding term. (Amended by Res. No. RS2006-1487 (Amdt. 3), referendum election of November 7, 2006, Amdt. 4)

Sec. 5.07. Pension for mayor.

After the mayor shall have served two (2) full terms, he or she shall receive an annual pension equivalent to ten (10%) percent of his or her salary during the last year of his or her second term, and after he or she shall have served three (3) full terms (in lieu of the lesser pension) he or she shall receive an annual pension equivalent to twenty-five (25%) percent of his or her salary during the last year of his or her third term. The amount of this pension shall not be increased by subsequent years of service as mayor. The pension herein provided shall be suspended during any subsequent period that the mayor shall be a compensated officer or employee of the metropolitan government and, if accepted, shall be in lieu of any pension which said mayor may be entitled to receive from the metropolitan government by reason of service as an officer or employee of the City of Nashville.

Any pension which a person may be entitled to receive from the metropolitan government by reason of services as mayor of the City of Nashville shall also be suspended during the period that such person shall be a compensated officer or employee of the metropolitan government. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 5.08. Oath of office.

Every person who shall serve in the office of mayor or vice mayor, shall, before entering on the duties of that office, take an oath to support the Constitution of this State, the Constitution of the United States, and the Charter of the Metropolitan Government of Nashville and Davidson County. (Added by Res. No. RS2018-1314 (Amdt. D), referendum election November 6, 2018, Amdt. 4)

ARTICLE 6. THE BUDGETS AND FINANCIAL MATTERS[5]

5. Sheriff, as an officer of the metropolitan government, is subject to and bound by the budgetary provisions of the *Metropolitan Charter. Metropolitan Government* v. *Poe*, 215 Tenn. 53, 383 S.W. 2d 265 (1964).

Sec. 6.01. Fiscal year.

The fiscal year of the metropolitan government shall begin on the first day of July of each year and shall end on the thirtieth day of June next following. Said fiscal year shall constitute the budget year and the year for financial accounting and reporting of each and every office, department, institution, activity and agency of the metropolitan government; but the aforesaid provision shall be in addition to, and not in lieu of, any accounting and reporting required of any official or agency by state or federal laws.

Sec. 6.02. Preparation of annual operating budget.

The director of finance shall obtain from all officers, departments, boards, commissions and other agencies for which appropriations are made by the metropolitan government, or which collect revenues for such government, such information as shall be necessary for him or her to compile the annual operating budget; and it shall be the duty of all such officers, departments, boards, commissions and agencies to furnish the director such information as he or she may require at such time or times and in such form as the director may prescribe.

Not later than March 1st prior to the end of each fiscal year, said director shall distribute to each of the agencies identified in the preceding paragraph all forms necessary for the preparation of the operating budget for the succeeding fiscal year. Such forms shall be returned to the director with the information desired not later than two months prior to the end of the current fiscal year. On the basis of the information so received and otherwise secured by him or her, said director shall prepare and transmit to the mayor a proposed operating budget for the next fiscal year of the kind and scope set forth in section 6.03 hereof. In preparing the proposed budget, the director may revise, as he or she may deem necessary, the estimates or requests made by the various officers, departments, boards, commissions and agencies, but any such agency shall be entitled to a hearing before the director with reference to any contemplated changes in its budget requests or estimates. (Amended by Res. No. RS2006-1487 (Amdt. 4), referendum election of November 7, 2006, Amdt. 5; Res. No. RS2008-404, § 1(Amdt. 1), referendum election 11-4-08; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 6.03. Scope of the annual operating budget.

Section I of the annual operating budget shall apply only to the general services district and shall deal with those services and functions appertaining to the general services district, as set out by this Charter, or by ordinance of the council.

Section II of the annual operating budget shall apply only to the urban services district and shall deal with those services and functions appertaining to such urban services district, as set out in this Charter, or by ordinance of the council.

Each of the above described sections of the annual operating budget shall contain with respect to each of the operating funds of the metropolitan government to which they are applicable:

(a) An estimate of the unencumbered fund balance or deficit at the beginning of the ensuing fiscal year, and the amount of any reserves for designated purposes or activities includable in the operating budget.

(b) A reasonable estimate of revenues to be received during the ensuing year, classified according to source; but the estimated revenues from current and from delinquent property taxes shall not exceed the percentage of the total receivable from each such source collected during the last completed fiscal year; or the current fiscal year.

(c) Proposed expenditures for each organizational unit and activity in accordance with the established classification of accounts, including those capital outlays which are to be financed from the revenues of the ensuing year, and including all debt service requirements in full for such fiscal year payable from such fund.

In no event shall the total proposed expenditures from any fund exceed the total anticipated revenues plus the estimated unappropriated surplus, or fund balance, and applicable reserves and less any estimated deficit at the end of the current fiscal year.

Sec. 6.04. Review and revision of operating budget by mayor; submission to council; budget as public record; distribution of copies.

The mayor shall review the operating budget submitted to him or her by the director of finance, and may make any revisions in such budget as he or she may deem necessary or desirable, before it is submitted to the council for consideration.

Not later than May 1st, the mayor shall submit to the metropolitan council the operating budget as approved by him or her in the form and with the contents specified in section 6.03 hereof, together with a message explaining such budget, describing its important features, and outlining the proposed financial policies of the metropolitan government for the ensuing fiscal year and

setting forth the reasons for any significant changes in policy or budgetary allocations. The mayor shall further provide the following:

A. performance and efficiency measurements, as determined by the director of finance, for departments, boards, commissions and other agencies for which appropriations are made by the metropolitan government. The director of finance shall have discretion to omit those departments, boards, commissions and other agencies whose functions, duties and/or responsibilities are not conducive to quantifiable performance and efficiency measurements;

B. the total principal amount of debt of the metropolitan government then outstanding, excluding those items set forth in subsection (E) herein;

C. a comparison of such total principal amount of debt to the total principal amount of debt outstanding as of the same date of the previous calendar year (expressed in both dollar and percentage terms);

D. a calculation of debt per capita, based on such total principal amount of debt and the population of the metropolitan government, as most recently published; and

E. a summary of the total amount of authorized but unissued general obligation bonds for which short term debt has been issued in the form of commercial paper, bond anticipation notes, or capital outlay notes; and a summary of all debt authorized pursuant to an initial general obligation bond resolution for which no short term debt has been issued.

F. As used herein, the term "debt" shall include only (i) general obligation indebtedness and (ii) indebtedness which does not constitute general obligation indebtedness but which is payable from and/or secured by a pledge or other commitment of all or any portion of the metropolitan government's general fund; in either case, whether such indebtedness is in the form of bonds, notes, commercial paper, or other instrument.

The mayor shall promptly cause copies of the budget and the budget message to be prepared for distribution to interested persons, and a summary of the budget shall be published in each of the daily newspapers in the area of the metropolitan government. The operating budget, as well as the capital improvements budget hereinafter provided for, the budget message, and all supporting schedules shall be public records in the office of the metropolitan clerk and shall be open to public inspection. (Amended by Res. No. RS2006-1487 (Amdt. 4), referendum election of November 7, 2006, Amdt. 5; Res. No. RS2008-404, § 1(Amdt. 1), referendum election 11-4-08; amended by referendum election of November 6, 2018, Amdt. 6; amended by Res. No. RS2019-1720 (Amdt. 1) on August 1, 2019)

Sec. 6.05. Hearings by council.

After the council shall have passed the budget ordinance on first reading, it shall hold hearings on the proposed operating budget, as well as on the capital improvements budget as provided in section 6.13 hereof, but the hearing on the capital improvements budget shall be heard prior to those on the proposed operating budget, and the hearings on either budget may be adjourned from time to time. Budget hearings shall be advertised in a daily newspaper of general circulation published in the area of the metropolitan government at least seven days prior to the date or dates set for the beginning of such public hearings.

Sec. 6.06. Action by council on operating budget.

After the conclusion of the public hearings, the council may amend the operating budget proposed by the mayor; except, that the budget as finally amended and adopted must provide for all expenditures required by law or by other provisions of this Charter and for all debt service requirements for the ensuing fiscal year as certified by the director of finance. Neither shall the council alter the estimates of receipts or other fund availability included in the budget document except to correct errors and omissions, in which event a full explanation shall be spread on the minutes of the council. In no event shall the total appropriations from any fund exceed the estimated fund balance, reserves and revenues, constituting the fund availability of such fund.

The council shall finally adopt an operating budget for the ensuing fiscal year not later than the thirtieth day of June, and it shall be effective for the fiscal year beginning on the following July 1st. Such adoption shall take the form of an ordinance setting out the estimated revenues in detail by source and making appropriations according to fund and by organizational unit, purpose or activity as set out in the budget document. If the council shall fail to adopt a budget prior to the beginning of any fiscal year, it shall be conclusively presumed to have adopted the budget as submitted by the mayor.

A copy of the adopted budget, certified by the metropolitan clerk, shall be filed in the office of the director of finance.

The amount set out in the adopted operating budget for each organizational unit, purpose or activity shall constitute the annual appropriation for such item, and no expenditure shall be made or encumbrance created in excess of the otherwise unencumbered balance of the

appropriation, or allotment thereof, to which it is chargeable. This shall not preclude the impoundment of funds or additional appropriations as provided herein.

Sec. 6.07. Property tax levies.

The council shall levy an annual tax on real and personal property and merchants' ad valorem in the general services district, and the tax levy ordinance shall be the next order of business of the council after the adoption of the operating budget. The tax rate set by such ordinance shall be in two (2) parts; the general tax rate and the school tax rate.

The general tax rate set by such ordinance shall be such that a reasonable estimate of revenue from the levy shall at least be sufficient, together with other anticipated revenues, fund balances, and applicable reserves, to equal the total amount appropriated with the exception of the amount appropriated for schools and to provide in addition, a reasonable amount of working capital for each of the several funds.

The school tax rate set by the ordinance shall be such that a reasonable estimate of revenue from the levy shall at least be sufficient, together with other anticipated revenues, fund balances, and applicable reserves, to equal the total amount appropriated for schools and to provide in addition, a reasonable amount of working capital.

After the council has approved the annual operating budget of the urban services district, said council shall determine and declare the amount of revenue which must be produced from a tax levy upon the real and personal property and merchants' ad valorem within the urban services district. The urban council shall thereupon convene and it shall have a mandatory obligation by resolution to levy a property tax adequate with other available funds to finance the budget for urban services, as determined by the council; subject, however, to the requirements of section 1.04 of this Charter with respect to the tax on property in the newly annexed areas.

The willingness and ability of citizens to bear the burden of tax increases should always be considered. Therefore, notwithstanding any provisions above, real

property tax rates shall not exceed the maximum rates approved by the voters of the county in a referendum. Such referendum may be authorized either by the mayor or by a majority vote of the council no more than once each calendar year pursuant to Tennessee Code Annotated section 2-3-204. The referendum shall read "The maximum real property tax rates for Davidson County shall be increased to:" followed by a list of rates. Voters shall be provided the two choices of FOR and AGAINST. The real property tax rates in effect as of November 7, 2006, shall be the maximum rates allowed until the first referendum occurs. (Amended by Amdt. 1 to referendum petition approved November 7, 2006)

Sec. 6.08. Allotments of appropriations.

All appropriations contained in the current operating budget shall be allotted by the director of finance on a quarterly basis, and it shall be his or her duty to make such allotments promptly at the beginning of each quarter of the fiscal year. Such allotments shall be based upon estimated needs, and in the determination of such need the director of finance may require all spending agencies to submit allotments requests on such forms as he or she may prescribe. Such allotments shall constitute authorizations for expenditure or encumbrance, and no expenditure shall be made or encumbrance created, but in pursuance of an allotment, and within the otherwise unencumbered balance of such allotment. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 6.09. Impoundment of funds.

Upon certification of the director of finance that the revenues or other resources actually realized with respect to any fund are less than was anticipated and are insufficient to meet the amounts appropriated from such fund, it shall be the duty of the mayor to impound such appropriations as may be necessary to prevent deficit operation.

Sec. 6.10. Additional appropriations.

The metropolitan council may make appropriations in addition to those contained in the current operating budget, at any regular or special meeting called for such purpose, but any such additional appropriation may be made only from an existing unappropriated surplus in the fund to which it applies.

Sec. 6.11. Transfer of appropriations.

On request of any department head, and with his or her consent, the mayor may transfer the unencumbered balance of any appropriation, or any portion thereof, for any purpose or activity to the appropriation for any other purpose or activity within the same department, but the same shall not be available for encumbrance or expenditure until it shall have been allotted by the director of finance.

At the request of the mayor, but only at the end of any quarter of the fiscal year, the council may by resolution approved by a majority of the membership of the council transfer the unencumbered balance of any appropriation, or any portion thereof, to another appropriation within the same section of the budget and within the same fund. However, the council shall not make transfers of appropriations at any time between the general services district and the urban services district, or transfer moneys from any operating fund to another fund. Provided, however, that this stipulation shall not apply to the discharge of obligations existing between governmental agencies financed from one fund and those financed through another fund, nor to the transfer of moneys from operating funds to agency or trust funds, covering collections to be expended through such agency or trust funds, nor to the transfer of the unappropriated surplus in bond funds to the debt service funds set up to retire such bond, nor to such other transfers between funds as may be authorized by law. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 6.12. Lapse of appropriations.

All unencumbered balances of appropriations in the current operating budget at the end of the fiscal year shall lapse into the unappropriated surplus or reserves of the fund or funds from which such appropriations were made.

Sec. 6.13. Capital improvements budget.

The director of finance shall obtain annually from all officers, departments, boards and commissions and other agencies requesting funds from the metropolitan government for capital improvements, such information as the planning commission shall require to enable it to prepare the capital improvements budget. This data shall be delivered to the planning commission not later than four months prior to the end of the fiscal year. The capital improvements budget shall include a program of proposed capital expenditures for the ensuing fiscal year and the next five fiscal years thereafter, accompanied by the report and recommendations of the metropolitan planning commission with respect to the program. Section I of the capital improvements budget shall present proposed general services district projects. Section II shall present proposed urban services district projects. The mayor shall submit the capital improvements budget to the council not later than May 15th and shall recommend those projects to be undertaken during the ensuing fiscal year and the method of financing them, noting the

impact on the debt structure of the metropolitan government and shall include in the appropriate current operating budget any projects to be financed from current revenues for the ensuing fiscal year.

The council shall have power to accept, with or without amendment, or reject, the proposed program and proposed means of financing. The council shall not authorize an expenditure for the construction of any building, structure, work or improvement, unless the appropriation for such project is included in its capital improvements budget, except to meet a public emergency threatening the lives, health or property of the inhabitants, when passed by two-thirds vote of the membership of the council. The capital improvements budget must be acted upon finally by the council not later than the fifteenth day of June following its submission.

The mayor may submit amendments to the capital improvements budget at any time during the year, accompanied by the recommendation thereon of the planning commission, which amendments shall become effective when adopted by a two-thirds vote of the membership of the council.

Sec. 6.14. General fund reserve.

From all original moneys collected during any year, before making a budget ordinance, there shall be deducted four (4%) percent of the gross amount of the general fund revenue of the general services district, which sum shall be placed in an account to be known as the general fund reserve and shall be kept separate and apart from other funds of the metropolitan government.

The mayor and council may by resolution make appropriations from said funds for the purchase of equipment for any department of the metropolitan government or for repairs to any building owned by any department of the metropolitan government; provided, however, that no appropriations shall be made from this fund to any department not deriving its operating funds from the general fund budget.

From all moneys collected during any year, and after making provisions for the four (4%) percent of the gross amount of the general fund revenue that shall establish the general fund reserve of the metropolitan government, there shall be next provided a sufficient amount, not to be less than fifty thousand ($50,000) dollars, to be placed in and constituted the metropolitan government advance planning and research fund for the use of the metropolitan planning commission of the metropolitan government in the preparation, in advance, of plans for capital projects, and for the making of such studies and the doing of such research as is by the metropolitan planning commission deemed necessary in the performance of the duties and responsibilities given it by the Metropolitan Charter and general law. No expenditures shall be made from said fund except by resolution of the metropolitan planning commission, and in no case shall expenditures be made therefrom for the payment of budgetary items or matters not concerned with research and advance planning. The resolution of the metropolitan planning commission as to capital projects shall precisely define the projects concerned and amounts expended in the planning of such projects shall be provided for in the financing of construction of same and, upon the commencement of construction, the metropolitan government advance planning and research fund shall be repaid those sums and moneys expended from it in the advanced planning of such project. From all moneys collected during any year, and after the making of provision for the four (4%) percent of the gross amount of the metropolitan government's general fund revenue flowing into the general fund reserve of the metropolitan government, there shall next be provided a sufficient amount, as of the first day of each fiscal year, to bring the unencumbered balance on hand in the metropolitan government advance planning and research fund created herein to the minimum sum of fifty thousand ($50,000) dollars.

By ordinance, the council may create a contingent reserve fund not to exceed four (4%) percent of the general fund revenue of the urban services district. The mayor and council may by resolution make appropriations from said fund for the purchase of equipment for any department of the metropolitan government or for repairs to any building owned by any department of the metropolitan government which equipment or buildings are used primarily for the furnishing of services herein defined as urban services; provided, however, that no appropriations shall be made from this fund to any department not deriving its operating funds from the general fund of the urban services district current operating budget.

Editor's note—Section 6.14 was amended at an election held Aug. 4, 1983.

Sec. 6.15. Post audit.

The council shall provide annually for an independent audit of the accounts and other evidences of financial transactions of the metropolitan government and of its every department, office and agency. The audit shall be made by an accountant or an accounting firm, the members of which have no personal interest, direct or indirect, in the fiscal affairs of the metropolitan government or of any of its departments, offices, or agencies. The designated accountant shall be a certified public accountant, or, if an accounting firm is employed, the

members thereof shall be so certified and thoroughly qualified by training and experience in governmental accounting to perform the audit.

The independent audit shall be made by a firm chosen by a three member audit board. This board shall consist of the presiding officer of the council, the chairman of the finance committee of the council, and the chairman of the metropolitan board of education.

The audit may be conducted on a quarterly or continuing basis and the final report of the annual audit shall be completed as soon as practicable after the close of the fiscal year, and in no event later than four months after the close of the fiscal year. The audit report shall be available to the public and to the press.

The council may at any time order an examination or special audit of any department, office or agency of the government.

ARTICLE 7. BOND ISSUES

Sec. 7.01. Bonds authorized by metropolitan council; purposes of issue.

The council may cause the bonds and other obligations of the metropolitan government to be issued in the following manner and subject to the following restrictions:

The council may in the name and for the use of the metropolitan government issue bonds or other obligations in the manner and to the extent hereinafter provided in this article. Such bonds or other obligations may be issued for the purpose of financing the whole or any part of the cost of any public improvement or property the metropolitan government is authorized by this Charter or any other law to acquire, construct, reconstruct, extend or improve. Two or more improvements or properties may be combined as a single improvement or property for the purpose of the issuance of bonds.

Sec. 7.02. Definitions.

For the purposes of this article, the word "bonds" shall mean and include bonds or other obligations payable from ad valorem taxes or other taxes, or from revenues derived from utilities or other revenue producing enterprises or facilities, or from any other sources, or any combination thereof; the words "revenue bonds" shall mean bonds or other obligations payable in whole or in part from the revenues derived from utilities or other revenue producing enterprises or facilities; and the words "tax bonds" shall mean bonds or other obligations payable in whole or in part from ad valorem taxes. All of the provisions of this article relating to bonds shall apply to all such types of bonds, except where expressly or by necessary implication provided otherwise.

Sec. 7.03. Costs includable; bonds for furnishings and equipment.

In any issue of bonds hereunder, there may be included as part of the cost to be financed from the proceeds of such bonds all engineering, technical and legal fees or expenses, interest upon such bonds during the period of acquisition or construction and for a reasonable period thereafter, fees of fiscal or financial agents or consultants, if any, the acquisition of necessary equipment and furnishings, working funds and reserve funds, and such other items or expenses as are necessary and incidental to the completion and financing of the improvement or property and the placing of the same in operation or use. Tax bonds not to exceed the aggregate principal amount of three hundred thousand ($300,000) dollars outstanding at any one time may be issued for the purpose of acquiring furnishings and equipment for metropolitan government purposes, and such authority to issue such bonds shall be in addition to and not in limitation of the other provisions of this Charter, and the issuance of such bonds shall not be subject to approval of the voters at any referendum.

Sec. 7.04. General tax bonds and urban tax bonds.

Tax bonds may be issued pursuant to this article for the general services district, herein sometimes referred to as "general tax bonds", or for the urban services district, herein sometimes referred to as "urban tax bonds", but the full faith and credit of the metropolitan government shall be pledged for all bonds issued hereunder which are payable in whole or in part from ad valorem taxes. Ad valorem taxes shall be levied and collected in the general services district for the payment of general tax bonds and in the urban services district for the payment of urban tax bonds; provided, however, that the metropolitan government shall be unconditionally and irrevocably obligated to levy and collect ad valorem taxes without limit as to rate or amount on all taxable property in the general services district to the full extent necessary to pay all principal of and interest on all tax bonds, both general tax bonds and urban tax bonds, and the full faith and credit of the metropolitan government shall be pledged for the payment of all tax bonds. In the event, however, that it shall ever become necessary to levy ad valorem taxes in the general services district outside the urban services district for the payment of urban tax bonds, then the amount of such taxes shall be included in the next levy of ad valorem taxes in the urban services district and restored to the tax revenues of the general services district, it being the express intention of this article that the holders of any such tax bonds

shall be entitled to the levy of ad valorem taxes to the full extent necessary on all the taxable property in the general services district, but that as between the general services district and the urban services district, such ad valorem taxes shall be levied in such respective districts for the full amount of debt service on bonds issued for such respective districts.

Sec. 7.05. When bond referendum not required; notice of issue.

No vote or approval of the qualified electors at an election shall be required for the issuance of any tax bonds hereunder if the initial resolution authorizing such tax bonds is adopted by two-thirds of the whole membership of the council, unless within twenty days after the date of the first publication of such initial resolution, with the notice set forth below, in a newspaper published and having general circulation in the area of the metropolitan government, a petition protesting the issuance of such tax bonds signed by at least six per centum of the qualified electors in the general services district in the case of general tax bonds, or in the urban services district in the case of urban tax bonds, is filed in the office of the metropolitan clerk. If a petition protesting the issuance of such tax bonds shall be filed as aforesaid within such twenty day period, then the tax bonds proposed by such initial resolution shall not be issued without the approval of a majority of the qualified electors residing in the general services district in the case of general tax bonds or in the urban services district in the case of urban tax bonds, who vote on a proposition for the issuance of such tax bonds at a regular or special election held in the manner prescribed herein. For the purposes of such election a qualified elector shall be any resident of the metropolitan government residing in the general services district in the case of general tax bonds or in the urban services district in the case of urban tax bonds, who was qualified to vote for members of the general assembly at the general election next preceding the filing of such petition or who is on the date of the filing of such petition then qualified to vote for the members of the general assembly. No qualified elector shall be permitted to withdraw his or her signature from such petition after signing the same. The notice to be published with said initial resolution shall be in substantially the following form:

NOTICE

The foregoing resolution has been adopted. Unless within twenty (20) days from the date of the first publication of this notice a petition signed by at least six . . . . . (6%) percent of the qualified electors residing in the Services District of the Metropolitan Government of Nashville and Davidson County shall have been filed with the Clerk of the Metropolitan Government protesting the issuance of the bonds authorized in such resolution, such bonds will be issued as proposed in said resolution.

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Clerk of the
Metropolitan Government

Notwithstanding any of the provisions of this article, the council may, if it desires, call an election as provided herein for the purpose of ascertaining the will of the qualified electors in the general services district or the urban services district, as the case may be, with respect to the issuance of any bonds, whether payable from ad valorem taxes or other taxes, or any other revenues, or a combination thereof. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 7.06. Referendum election after petition of protest.

If the filing of a petition protesting the issuance of any tax bonds with the metropolitan clerk shall result in the necessity of any election on the proposition to issue such tax bonds, the council upon the filing of such petition shall adopt a resolution, herein called the election resolution, which shall direct the holding of an election for the purpose of voting for or against the tax bonds proposed to be issued, said election to be conducted by the Davidson County Election Commissioners as hereinafter provided. Such election resolution shall state the purpose or purposes for which each bond issue is authorized, the amount or maximum amount of the bonds, the maximum number of years for which the bonds are to run, and the maximum rate of interest such bonds are to bear. More than one proposition may be submitted at the same election. Said election resolution shall request the Davidson County Election Commissioners to arrange for the holding of the election on the date specified in the resolution. The election shall thereupon be held, notice thereof given and the results thereof canvassed in the manner provided by the general laws for the holding of elections under the supervision of the election commissioners. After the council has received the official report of the outcome of the election from the election commissioners, the council shall adopt a resolution in which there shall be contained a formal finding of the outcome of the election, which finding shall be conclusive.

No approval of the qualified electors residing in either the general services district or the urban services district at any election shall be required for the issuance of any bonds unless ad valorem taxes shall be pledged

for the payment of all or part of the debt service on such bonds, and the above provisions for a permissive referendum on petition shall not apply to other bonds.

Sec. 7.07. Issuance of bonds under general law.

Bonds may be issued under this article for either the general services district or the urban services district pursuant to any general law of the State of Tennessee now or hereafter in effect and applicable to counties or cities or metropolitan governments in the State of Tennessee, and it is hereby expressly provided that the metropolitan government may issue bonds under the provisions of all such general laws without regard to any limitations or restrictions contained in this Charter. No proceeding for the issuance of such bonds shall be required other than those required by the general law under which such bonds are authorized and no provision of any resolution, ordinance or notice, and no election or opportunity for referendum shall be required except as may be specifically required by the provisions of such general law.

Sec. 7.08. Limitations on urban bonds.

No urban tax bonds shall be issued pursuant to this article which shall cause the total net bonded indebtedness payable from ad valorem taxes incurred for the urban services district (including all tax bonds theretofore issued for the urban services district and then outstanding, and the amount of any tax bonds theretofore issued by the City of Nashville and then outstanding which are allocated to the urban services district by this article), after deduction of all sinking funds on hand for the payment of principal, to exceed fifteen (15%) percent of the assessed valuation of taxable property in the urban services district as last completed and determined prior to the issuance of such tax bonds. In computing the bonded indebtedness incurred for the urban services district for the purpose of this paragraph there shall be excluded:

(a) All urban bonds issued in anticipation of the collection of special assessments whether or not such urban bonds are also payable from ad valorem taxes.

(b) All revenue bonds issued for the urban services district or any part thereof which are payable solely from the revenues derived from the operation of any utility or other revenue producing enterprise or facility.

(c) All urban bonds payable from both ad valorem taxes and revenues derived from the operation of any utility or other revenue producing enterprise or facility, to the extent that such utility or other revenue producing enterprise or facility was self-liquidating during the immediately preceding fiscal year, in that the revenues derived therefrom, after deducting all current expenses of operation and maintenance, were sufficient to pay all principal of and interest on such bonds due in such fiscal year; or if such utility or other revenue producing enterprise or facility was not fully self-liquidating in such fiscal year, then a part of such bonds shall be excluded, which part shall be the same proportion of the total amount of such bonds which the amount of net revenues derived from such utility or revenue producing enterprise or facility in such fiscal year bears to the amount of net revenues which would have been required to make such utility or revenue producing enterprise or facility fully selfliquidating in such fiscal year.

(d) Urban bonds issued under the authority of any general law of the State of Tennessee as distinguished from urban bonds issued under sole authority of this article.

(e) Urban bonds not exceeding two hundred thousand ($200,000) dollars in any year, issued to provide funds to repair or to replace any public building, work or structure rendered unsuitable for use by disaster when determined by the council to be essential to the public health, safety or convenience.

(f) Urban tax bonds in the aggregate principal amount of three hundred thousand ($300,000) dollars issued for the purpose of acquiring furnishings and equipment for metropolitan government purposes.

No approval of qualified electors at an election shall be required for the issuance of any of the bonds referred to in subparagraphs (a) to (f) above, and the referendum upon petition provisions of this article shall not apply to such bonds.

Sec. 7.09. Amount and purpose; obligations; form issuance.

(a) The metropolitan government may issue its bonds or notes in such principal amounts as it shall deem necessary for any of its purposes.

(b) The bonds or notes shall be payable and secured by such source or sources of payment as set forth in the resolution of the council authorizing the issuance of such bonds or notes.

(c) Bonds or notes of the metropolitan government shall be authorized by resolution of the council and may be issued in one or more series and shall bear such date or dates, mature at such time or times, bear interest at such rate or rates of interest per annum within such maximum rate as shall be mandated by general law applicable to the metropolitan government, be in such denomination or denominations, be in such form either coupon or registered, carry such conversion or registration privileges, be secured and have such rank or priority, be sold and executed in such manner, be payable from such sources in such medium of payment

at such place or places within or without the state, and be subject to such terms of redemption, with or without premium, as the resolution provides.

Editor's note—Former § 7.09 was deleted and a new § 7.09 was substituted at an election held Aug. 4, 1983.

Sec. 7.10. Metropolitan bonds negotiable and tax exempt.

All bonds of the metropolitan government shall be and constitute and have all the qualities and incidents of negotiable instruments under the law merchant and the negotiable instruments law of the State of Tennessee, regardless of the source or sources of payment of such bonds. No bonds issued hereunder shall be invalid for any irregularity or defect in the proceedings for the issuance and sale thereof, and all such bonds, upon the delivery thereof and payment therefor, or exchange in the case of refunding bonds, shall be conclusively deemed to be the valid and legally binding obligations of the metropolitan government in accordance with the terms thereof, and shall be incontestable in the hands of the purchasers or holders from time to time thereof.

All bonds of the metropolitan government, and the interest thereon, and all properties, revenues and other assets of any utility or other revenue producing enterprise or facility of the metropolitan government shall be exempt from all taxation by the State of Tennessee, or any county, municipality, political subdivision or taxing agency thereof, except for inheritance, transfer and estate taxes.

Sec. 7.11. Refunding bonds.

Bonds may be issued hereunder for the purpose of refunding not more than a like principal amount of any outstanding bonds of the metropolitan government, including any bonds heretofore issued by the County of Davidson or the City of Nashville. Such refunding bonds may be issued without regard to the amount of bonded indebtedness of the metropolitan government, either for general bonds or urban bonds, and without the necessity of the approval of the qualified electors or the holding of any election, and shall not be subject to the referendum on petition provisions of this article. Where the bonds to be refunded have become due, or become due or are called for redemption not more than six months after the delivery of the refunding bonds, the refunding bonds may be delivered and the proceeds thereof escrowed with the fiscal agent of the metropolitan government for the payment of the bonds to be refunded in such manner as the council may prescribe.

Sec. 7.12. Sale.

All bonds issued under this article, except revenue, refunding and special tax bonds, shall be sold by the council at public sale to the highest responsible bidder, after such advertisement as may be prescribed by the council.

Editor's note—Section 7.12 was amended at an election held Aug. 4, 1983.

Sec. 7.13. Temporary financing.

The council may provide for temporary financing of any improvement or property by the issuance of bond anticipation notes in anticipation of the sale of bonds which have been duly authorized hereunder or under any other law, but all such bond anticipation notes, including any renewals thereof, shall finally mature not later than three years from the date of the original notes. All such bond anticipation notes shall have the same security as the bonds in anticipation of which such notes are issued. The council may also provide for the issuance of interim certificates or temporary bonds pending the delivery bonds which have been duly awarded and sold. The council shall prescribe the dates of issue and maturity, form and all other details of such bond anticipation notes, interim certificates or temporary bonds. The council may also provide that short term financing be done with competitive bidding on the open market.

Sec. 7.14. Bonds issued by resolution of council; notice of right to contest.

All bonds issued under this article shall be authorized by resolution or resolutions adopted by a majority vote of all the members of the council, at any properly convened regular, adjourned or special meeting, which may be the same meeting at which they are introduced. No publication of any resolution, proceeding or notice shall be necessary, except as specifically required by this article.

The council in the resolution authorizing any bonds may provide that after the adoption of such resolution there shall be published in a newspaper published and having general circulation in the area of the metropolitan government, a notice in substantially the following form:

NOTICE

On . . . . . ., 19. . ., the Metropolitan Council of the Metropolitan Government of Nashville and Davidson County adopted a resolution authorizing the issuance of $. . . . . bonds for the purpose of. . . . . ., a copy of which said resolution is on file in the office of the Metropolitan Clerk and open to inspection by any voter or citizen residing in the area of the Metropolitan Government.

For a period of twenty (20) days following the date of the first publication of this notice, any taxpayer or other interested person may file an appropriate suit or proceeding questioning the validity of the bonds proposed to be issued or the legality of the proceedings had in the authorization of such bonds. After the expiration of said twenty days, no one shall have any cause or right of action to contest in any court the legality of said bonds or proceedings or the power and obligation of the Metropolitan Government to pay said bonds from the taxes or other revenues provided in such proceedings or bonds.

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Metropolitan Clerk

In the case of tax bonds, however, such notice shall not be published until after the expiration of the period for the filing of a petition for a referendum, or, if such petition shall be filed, then not until after the approval of such bonds at such referendum.

If, pursuant to direction of the council, such notice is published, no one shall have any cause or right of action after the expiration of said twenty-day period, to contest the legality, formality or regularity of such bonds or proceedings in any court for any cause whatsoever, and the authority to issue such bonds, the legality thereof and the legality of the taxes or other revenues pledged to pay the same, shall be conclusively presumed, and no court shall have any jurisdiction or authority to inquire into such matters.

Sec. 7.15. Bond proceeds constitute trust fund.

The proceeds of the sale of bonds issued under the provisions of this article shall constitute a trust fund, and each issue shall be accounted for separate and apart, to be used exclusively for the purpose or purposes for which said bonds are authorized; but the purchaser of such bonds shall be under no obligation or responsibility to see to the application thereof, and the manner of an application of such proceeds shall in no way affect the rights, remedies or security and sources for payment of the holders of such bonds.

Sec. 7.16. Unissued bonds of county or city.

Any bonds duly authorized but unissued by the County of Davidson or the City of Nashville at the effective date of this Charter[6] may be issued in the name of and sold by the metropolitan government in accordance with the provisions of the statutes and resolutions under which such bonds were authorized in the same manner and with like effect as though this Charter had not been enacted, it being the intent hereof that the enactment of this Charter shall in no way affect or impair the right of the metropolitan government to complete the sale and issuance of such bonds.

6. April 1, 1963.

Sec. 7.17. Revenue bonds.

In addition to revenue bonds authorized to be issued by any other provision of this Charter or by the provisions of any general law of the State of Tennessee, the council shall have power to authorize the issuance of revenue bonds to finance all or part of the cost of any utility or other revenue producing enterprise or facility, where such revenue bonds are to be payable in whole or in part from the revenues of such utility or other revenue producing enterprise or facility, and to pledge all or any part of such revenues for the payment of such revenue bonds. All of the applicable provisions of this article shall be complied with in the issuance of such revenue bonds. The council may in the proceedings authorizing the issuance of such revenue bonds make and enter into valid and binding covenants with the holders of such revenue bonds including, but not limited to, the appointment of trustees to hold and secure the proceeds of such revenue bonds and such revenues and the application thereof, the fixing and revision of the fees, rates or other charges for the services and facilities of such utility or other revenue producing enterprise or facility, including reasonable margins of safety, the creation and maintenance of reserve funds, sinking funds and depreciation funds, the appointment of a receiver in case of defaults in payment of debt service or performance of such covenants and such other covenants as are deemed necessary and advisable for the marketability of such revenue bonds and the security of the holders thereof.

Sec. 7.18. Combined tax and revenue bonds.

The council may also issue combined tax and revenue bonds if deemed advisable, or pledge any other security permitted by law to the payment of such revenue bonds in addition to such revenues from such utility or other revenue producing enterprise or facility; provided, however, that if ad valorem taxes are pledged for the payment of all or any part of bonds for which such revenues are also pledged, the provision for a referendum on petition on issuance of tax bonds provided herein shall apply to such revenue bonds for which ad valorem taxes are also pledged.

Sec. 7.19. Refunding revenue bonds.

The council shall also have power to issue refunding revenue bonds to refund any revenue bonds theretofore issued, including any revenue bonds theretofore issued

by the County of Davidson or the City of Nashville, or to issue refunding and improvement revenue bonds for the combined purpose of refunding outstanding revenue bonds and to finance additions, extensions and improvements to such utility or other revenue producing enterprise or facility, and all of the applicable provisions of this article shall be complied with in the issuance of said refunding revenue bonds or combined refunding and improvement revenue bonds.

Sec. 7.20. Debt service funds.

There shall be a general services district debt service fund and an urban services district debt service fund for the amortization of general bonds and urban bonds respectively, including bonds issued prior to the effective date of this Charter by the County of Davidson and the City of Nashville which have been allocated to such districts under the provisions of this article. Such debt service funds shall consist of the cash and securities in the debt service funds for bonds issued by the County of Davidson and the City of Nashville prior to the effective date of this Charter and such funds hereinafter required to be paid into such funds and the interest earned on the investment thereof. The debt service funds for the bonds heretofore issued by the County of Davidson and the City of Nashville shall be transferred to the debt service fund of the district to which such bonds are allocated by this article. Nothing contained herein, however, shall affect any debt service funds for any revenue bonds or other bonds which are required by the proceedings which authorized any bonds to be maintained as separate and segregated debt service funds for such bonds, and such sinking funds shall be transferred to the metropolitan government and segregated and maintained in the manner provided in the proceedings which authorized the issuance of such bonds.

All such debt service funds may be invested only in bonds which are full faith and credit general obligations of the metropolitan government, the State of Tennessee, the County of Davidson, the City of Nashville, the United States of America, or in such securities as may be provided in the proceedings which authorized such bonds.

There shall be included in the annual tax levy ordinances for the general services district and the urban services district, over and above all other taxes assessed therein, a sum sufficient to meet the interest and redemption charges on all tax bonds due or to be paid in the ensuing year and issued for or allocated to such districts respectively, together with a sum sufficient to reimburse the general fund for any appropriation made or to be made therefrom for the payment of any such interest or redemption charges.

All moneys paid into any debt service fund shall be used exclusively for the purchase, retirement or payment of the outstanding bonds for which such debt service funds are created and maintained, and the metropolitan treasurer shall keep a record of all receipts and disbursements of the debt service funds and shall report the same to the mayor and council quarterly in each fiscal year.

Should any levy for debt service fund purposes, except in the case of bonds payable solely from revenues, fail for any reason whatsoever to provide sufficient funds to meet the redemption and interest charges for bonds in any year, sufficient amounts shall be paid from either the general fund of the general services district or the urban services district for such redemption and interest charges, subject to reimbursement from subsequent levies in the general services district or the urban services district, as the case may be.

If either the general services district debt service fund or the urban services district debt service fund shall accumulate a surplus sufficient to retire bonds callable and chargeable to such funds, the metropolitan treasurer, with the approval by resolution of the mayor and council, may purchase any of such bonds at a price not exceeding the redemption price thereof on the next ensuing redemption date or may call for prior redemption any of such bonds on the next ensuing redemption date in the manner provided in the proceedings which authorized the issuance of such bonds.

The metropolitan treasurer shall deduct monthly, or cause to be deducted monthly, the amounts realized from the inclusion in the annual tax levy ordinances of the general services district and the urban services district of the necessary sums in conformity with the subject to the above debt service fund provisions and shall deposit, or cause to be deposited, the same in the metropolitan government depositories to the credit of the appropriate district debt service fund accounts, which funds shall be kept separate and apart from all other funds of the metropolitan government.

All bonds issued prior to the effective date of this Charter by the County of Davidson, and all bonds authorized but unissued by the County of Davidson at the effective date of this Charter and thereafter issued by the metropolitan government, shall be allocated to the general services district and the principal of and interest on such bonds shall be paid from ad valorem taxes or other revenues collected in the general services district.

All bonds issued prior to the filing date of this Charter by the City of Nashville, except for the bonds described in the next paragraph, shall be allocated to the general services district and the principal of and interest on such bonds shall be paid from ad valorem taxes or other revenues collected in the general services district,

and it is hereby found and determined that all such bonds were issued to finance all or part of the cost of improvements or properties which render or will render services or benefits to all or substantially all the inhabitants of the general services district. All debt service funds for such bonds shall be transferred to the general services district debt service fund.

The following described bonds issued prior to the filing date of this Charter by the City of Nashville shall be allocated to the urban services district and the principal of and interest on such bonds shall be paid from ad valorem taxes or other revenue collected in the urban services district:

CITY OF NASHVILLE BONDS—URBAN SERVICES DISTRICT

Fire Department

Original Date of Issue	Final Maturity	Title of Issue	Principal Outstanding June 30, 1962
12- 4-33	12- 1-63	Fire Hall Improvement Bonds of 1933 .	$ 10,000
6-15-57	6-15-57	Fire Department Improvement Bonds of 1957	85,000
6-15-60	6-15-90	Fire Department Construction, Improvement and Equipment Bonds of 1960 . .	985,000
		Total	1,080,000

Street, Alley and Sewer

6- 1-45	6- 1-74	Street, Alley and Sewer Bonds of 1945-A.	795,000
6- 1-45	6- 1-74	Street, Alley and Sewer Bonds of 1945-B.	795,000
6- 1-48	6- 1-78	Street, Alley and Sewer Bonds of 1948-A.	795,000
6- 1-48	6- 1-78	Street, Alley and Sewer Bonds of 1948-B.	795,000
6- 1-48	6- 1-78	Street, Alley and Sewer Bonds of 1948-C.	795,000
6- 1-48	6- 1-78	Street, Alley and Sewer Bonds of 1948-D.	795,000
		Total	3,411,000

Sewers

4- 1-26	4- 1-66	Sanitary Sewer Bonds of 1925 Series A.	44,000
11- 1-27	11- 1-67	Sanitary Sewer Bonds of 1925 Series B.	65,000
11- 1-28	11- 1-68	Sanitary Sewer Bonds of 1925 Series C.	108,000
8- 1-29	8- 1-69	Lateral Sanitary Sewer Bonds of 1929 .	77,000
12- 4-33	12- 1-63	Sewer Extension Bonds of 1933	33,000
9- 1-47	9- 1-77	Sewer Bonds of 1947.	260,000
5- 1-53	5- 1-93	Sewer Bonds of 1953.	420,000
3- 1-54	3- 1-64	Sewer Construction and Improvement Bonds of 1954.	20,000
11- 1-54	11- 1-85	Sewer Bonds of 1954.	770,000
5- 1-56	5- 1-86	Sanitary Sewer Bonds of 1956	750,000
7- 1-58	7- 1-78	Airport Sewer Construction Bonds of 1958	220,000
7- 1-58	7- 1-88	Sanitary Sewer Bonds of 1958	960,000
6-15-60	6-15-90	Sewer and Utility Relocation and Land Acquisition Bonds of 1960	485,000
6-15-61	6-15-00	Sewer Bonds of 1961.	5,500,000
		Total	9,709,000

Capitol Hill

9- 1-50	9- 1-90	Capitol Hill Improvement Bonds of 1950.	775,000
9- 1-55	9- 1-95	Capitol Hill Improvement Bonds of 1955.	2,050,000
		Total	2,825,000

Waterworks

8- 1-29	8- 1-69	Water Extension Bonds of 1929.	61,000
12- 4-33	12- 1-63	Waterworks Extension Bonds of 1933 .	20,000
6- 1-45	6- 1-74	Waterworks Bonds of 1945-A	135,000
6- 1-45	6- 1-74	Waterworks Bonds of 1945-B	135,000
4- 1-48	4- 1-68	Waterworks Bonds of 1948	70,000
12- 1-48	12- 1-88	Waterworks Bonds of 1948-A	1,525,000
12- 1-48	12- 1-88	Waterworks Bonds of 1948-B	1,525,000
1- 1-52	1- 1-92	Combined Water and Sewer Bonds of 1952	920,000
		Total	4,391,000

Miscellaneous

5- 1-24	5- 1-64	T. C. Railroad Refunding Bonds of 1924.	64,000
4- 1-42	4- 1-64	Public Improvement Repair and Replacement Bonds of 1942	20,000
6-15-57	6-15-77	Garbage Collection and Disposal System Bonds of 1957.	107,000
6-15-57	6-15-77	Equipment and Improvements Bonds of 1957	130,000
1-15-60	1-15-90	Urban Renewal Bonds of 1960 Series A-1	1,375,000
1-15-60	1-15-90	Urban Renewal Bonds of 1960 Series A-2	950,000
		Total	2,646,000
		Grand Total	$24,062,000

Any bonds issued by the City of Nashville after the filing date of this Charter and before the effective date of this charter, and any bonds authorized but unissued by the City of Nashville at the effective date of this Charter and thereafter issued by the metropolitan government, shall be allocated either to the general services district or the urban services district in such manner and amounts as the council shall determine, consistent with the allocation of functions between the general and the urban services districts, and the principal of and interest on such bonds shall be paid from ad valorem taxes or other revenues collected in the district so determined by the council.

Any revenue bonds issued prior to the effective date of this Charter by the County of Davidson or the City of Nashville, and any revenue bonds authorized but unissued by said county or said city at the effective date of this Charter and thereafter by the metropolitan government, shall be payable as to principal and interest from the revenues or other sources and in the manner provided in the proceedings which authorized the issuance of such revenue bonds.

Neither the allocation of bonds to the general services district or the urban services district nor any of the other provisions of this charter shall impair or diminish any of the rights, remedies or security and sources for payment of any of such bonds or revenue bonds issued by the County of Davidson or the City of Nashville prior to the effective date of this Charter, or authorized but unissued by the County of Davidson or the City of Nashville at the effective date of this Charter and thereafter issued by the metropolitan government, and such holders of such bonds or revenue bonds shall have and be entitled to enforce any and all rights, remedies and security and sources for payment granted such holders by the proceedings which authorized the issuance of such bonds or revenue bonds as fully and to the same extent as if this Charter had not been adopted.

ARTICLE 8. METROPOLITAN DEPARTMENTS

CHAPTER 1. DEPARTMENT OF METROPOLITAN FINANCE

Sec. 8.101. Created; functions.

There shall be a department of metropolitan finance, which shall consist of the director thereof, of other personnel hereinafter mentioned and of such other positions and employees as may be provided by ordinance or by regulations of the director consistent with ordinance. The department of finance shall administer the financial affairs of the metropolitan government in accordance with the provisions of this Charter and applicable ordinances.

Sec. 8.102. Director of finance—Qualifications, appointment and compensation.

The director of finance shall have proven administrative ability and a well founded reputation in public finance, or a record of exceptional performance for at least five (5) years as a comptroller or financial head of a large business. The mayor shall appoint the director of finance subject to confirmation by a majority of the whole membership of the council. He or she shall serve at the pleasure of the mayor making the appointment and until his or her successor is qualified. The director's salary shall be fifteen thousand ($15,000) dollars per annum, payable semimonthly. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.103. Same—Powers and duties.

The director of finance shall be responsible to the mayor for the administration of the financial affairs of the metropolitan government, and to that end shall supervise the division of budgets, the division of accounts, the division of collections, the division of treasury, the division of purchases, and such other units as may be established by ordinance.

The director of finance or his or her designated divisional director shall:

(a) Compile for the mayor the current budget of estimated revenues and proposed expenditures for each of the operating funds of the metropolitan government; and assist in the preparation of the capital improvements budget, as provided by section 6.13 of this Charter.

(b) Maintain accounting systems for the general services district and the urban services district of the metropolitan government, and for each department, office and agency thereof, in accordance with generally recognized governmental accounting principles and procedures, keeping accounting records for and exercising financial and budgeting control over such department, office or agency.

(c) Prescribe the accounts to be kept by all departments, offices and agencies of the metropolitan government, the form of receipts, vouchers, bills or claims, warrants, requisitions, purchase orders or any financial stationery to be used, and provide suitable instructions for the use thereof, and to review and approve the forms and procedures of the trustee and the tax assessor.

(d) Prescribe the times and the manner in which moneys received by any department, office or agency shall either be paid to the metropolitan treasurer or deposited in a bank account to the credit of the metropolitan government.

(e) Examine all contracts, purchase orders and other documents which would result in or involve financial obligations against the metropolitan government, and approve the same only upon ascertaining that there is an unexpended, unencumbered and unimpounded balance in each such appropriation and allotment to which they are applicable, sufficient to cover such potential obligation.

(f) Audit before payment all bills, invoices, payrolls and other claims, demands or charges against the metropolitan government and approve the same only if proper, legal and correct, and duly authorized by appropriations or allotments of appropriations.

(g) Periodically inspect and audit the accounts and records of financial transactions maintained in each department, office and agency of the metropolitan government.

(h) Submit a monthly financial report to the mayor, for presentation to the council, showing the financial condition of the various funds of the metropolitan government, as well as the condition of all items included in the adopted annual operating budget, including estimated revenues, revenues received, appropriations and allotments for such appropriations.

(i) Prepare a complete annual report of the financial activities of all funds and all departments, boards, commissions, and agencies of the metropolitan government.

(j) Subject to the approval of the mayor, instruct the treasurer to invest the moneys of any fund in securities of the metropolitan, state or federal government and/or place them on interest bearing deposit in a bank or banks where it is anticipated that the funds will not be needed for a period of ninety days or more.

(k) With the assistance of the department of law and the metropolitan planning commission, establish standard procedures for acquiring and disposing of land for metropolitan departments, boards and commissions, exclusive of land acquisition for the Nashville Electric Service and the Nashville Housing Authority.

(l) Maintain an inventory of public property and equipment.

(m) Provide for a central records retention program.

(n) Perform such other duties as may be assigned by this Charter or by ordinance.

(o) Provide the vice mayor, with the approval of a majority of the whole membership of the council, with access to any financial information in the possession of the department of finance. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—The addition of subsection (o) to this section was approved at an election held Aug. 4, 1983.

Sec. 8.104. Division of budgets created; functions of budget officer.

There shall be in the department of finance a division of budgets, which shall consist of the budget officer and such other officers and employees, organized into such units, as may be provided by ordinance or by the director of finance consistent with ordinance. The budget officer shall be appointed for an indefinite term by the mayor, subject to the civil service provisions of this Charter, and he or she shall be the head of the division of budgets. The budget officer shall have at least five (5) years' experience in which budget preparation, administration, and/or accounting systems shall have been his or her major responsibility. The budget officer's salary shall be twelve thousand ($12,000) dollars per annum, payable semimonthly. The budget officer shall compile, under the supervision of the director of finance, the departmental estimates and other data necessary or useful to the mayor and the director of finance, and assist in the preparation of the budgets. He or she shall examine from time to time the departments, boards, commissions, officers and agencies of the metropolitan government in relation to their organization, personnel and other requirements; ascertain the manner in which their respective budgets are carried out and their functions performed; call the attention of the department heads and the mayor to any improvements or economies which might be made in their administrative practices and cooperate with the heads thereof in the preparation of their budget estimates for the ensuing fiscal year.

He or she shall carry on a continuous research program in systems and methods so as to keep current in all phases of data processing, business methods and the like; and make recommendations from time to time to the director of finance for utilizing to advantage the newest equipment and methods. The budget officer, with the advice and assistance of the chief accountant, shall write, revise and maintain a proper standard procedure instruction manual to be followed by all officers, departments, boards and other agencies of the government to insure uniform accounting and budgetary procedures. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.105. Division of accounts created; duties of chief accountant.

There shall be in the department of finance a division of accounts, which shall consist of the chief accountant and such other officers and employees, organized into such units, as may be provided by ordinance or by the director of finance consistent with ordinance. The chief accountant shall be appointed for an indefinite term by the mayor, subject to the civil service provisions of this Charter, and he or she shall be the head of the division of accounts. The chief accountant shall have at least five (5) years of responsible supervisory experience in general accounting and/or internal auditing. The chief accountant's salary shall be twelve thousand ($12,000) dollars per annum, payable semimonthly. The chief accountant shall maintain (1) a general accounting system and such cost accounting records as shall be required by the director of finance, and (2) budgetary control records designed to prevent expenditures in excess of appropriations or allotments. He or she shall prepare disbursement warrants and conduct a thorough preaudit to all claims on all funds, including payrolls, before payment and shall maintain a current audit control over cash receipts. The chief accountant shall perform such other duties as

may be assigned him or her by ordinance or by the director of finance. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.106. Division of treasury created; duties of metropolitan treasurer.

There shall be in the department of finance a division of treasury, which shall consist of the metropolitan treasurer and such other officers and employees as may be provided by ordinance or by the director of finance consistent with ordinance. The metropolitan treasurer shall be appointed for an indefinite term by the mayor, subject to the civil service provisions of this Charter, and he or she shall be the head of the division of treasury. The metropolitan treasurer shall have at least five (5) years' experience in which the supervision of fiscal affairs or treasury management shall have been his or her major responsibility. The metropolitan treasurer's salary shall be twelve thousand ($12,000) dollars per annum, payable semimonthly. The metropolitan treasurer shall supervise and be responsible for the custody and disbursement of all funds belonging to the metropolitan government and all funds handled by metropolitan government officers as agents or trustees except as otherwise provided in this Charter or by ordinance or general law not inconsistent with this Charter. He or she shall pay moneys out of the treasury only by checks which have been approved by the division of accounts. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.107. Division of collections created; duties of collections officer.

There shall be in the department of finance a division of collections, which shall consist of the collections officer and such other officers and employees, organized into such units, as may be provided by ordinance or by the director of finance consistent with ordinance. The collections officer shall be appointed for an indefinite term by the mayor, subject to the civil service provision of this Charter, and he or she shall be the head of the division of collections. The collections officer shall have at least five (5) years' experience in which the supervision of financial activities shall have been his or her major responsibility. The collections officer's salary shall be twelve thousand ($12,000) dollars per annum, payable semimonthly. It shall be the duty of the collections officer to collect and receive delinquent real and personal property taxes or tax equivalents and all merchants' ad valorem taxes that have been delinquent for more than six (6) months as well as any interest and penalties thereon. The collections officer shall collect and receive all revenues, income and moneys due the metropolitan government accruing to the urban services district, the general services district, or any other source, except as otherwise provided for by other parts of this Charter, by ordinance, or by the general law. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.108. Division of purchases created; appointment and qualification of purchasing agent.

There shall be in the department of finance a division of purchases, which shall consist of the purchasing agent and such other officers and employees, organized into such units, as may be provided by ordinance or by the director consistent with ordinance. The purchasing agent shall be appointed for an indefinite term by the mayor, subject to the civil service provisions of this Charter. The purchasing agent's salary shall be twelve thousand ($12,000) dollars per annum, payable semimonthly. He or she shall be a person with at least five (5) years experience in private business or governmental purchases and property management, control and accountability. The purchasing agent shall have the responsibility of the general management and control of the division and shall have the power to make rules and regulations for the administration of the division subject to the approval of the director of finance. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.109. Function of division of purchases.[7]

Except as provided in this section, the division of purchases shall purchase, or obtain by lease or rental, for the use of the metropolitan government and its departments, boards, commissions, officers and agencies all necessary and appropriate supplies, materials, equipment, other personal property, contractual services, insurance and surety bonds. The council may establish by ordinance rules and regulations, defining emergencies, under which designated items, including perishables, may be purchased or obtained without compliance with purchasing procedures established in this chapter. The electric power board, the Nashville Housing authority, the board of education and such other agencies as may

be specified by ordinance shall be excluded from the purchasing procedures established in this chapter, except to the extent otherwise herein specifically provided.

In order that local taxpayers are protected and local Davidson County residents have opportunity to work on taxpayer-funded projects, the division of purchases, when expending funds or other resources of the metropolitan government in the amount of one hundred thousand dollars ($100,000.00) or more on a project for the building, altering, repairing, improving or demolishing any public structure or building or other public improvements of any kind to any public real property, but excluding professional services, shall require that one (1) or more residents of Davidson County perform forty percent (40%) of the Total Construction Work Hours worked by construction craft workers on each project whether workers are employed by a contractor or any subcontractor, and shall require that a significant effort be made to ensure that no less than ten percent (10%) of the Total Construction Worker Hours are performed by low income residents of Davidson County. In determining the Total Construction Worker Hours for each project, there shall be included the number of hours worked on all customary construction activities, but shall exclude the number of hours of work on the project performed by workers who are not residents of Tennessee. A procedure for reporting Total Construction Worker Hours and a penalty for failure to comply with this requirement may be provided by ordinance or by the division of purchases consistent with ordinances, and all reports will be made available to the public. (Referendum election of August 6, 2015, Amdt. 3)

7. Sheriff, as an officer of the metropolitan government, is subject to and bound by the purchasing provisions of the Metropolitan Charter. Metropolitan Government v. Poe, 215 Tenn. 53, 383 S.W. 2d 265 (1964).

Sec. 8.110. Powers and duties of purchasing agent.

The purchasing agent, for the purpose of giving effect to the provisions of the preceding section, shall have the following powers and duties:

(a) With the approval of the director of finance and the mayor, and after consultation with the heads of the using agencies concerned, to establish and enforce standard specification for all supplies, materials and equipment required by the metropolitan government which the purchasing agent has authority to purchase or lease.

(b) To prescribe the time of making requisitions for such supplies, materials and equipment and the future period which such requisitions are to cover.

(c) To inspect, or cause to be inspected, all deliveries of such supplies, materials and equipment, and to cause tests to be made when necessary in order to determine their quality, quantity and conformance with specifications.

(d) To supervise and control storerooms, mailing, messenger, central duplicating and printing services and facilities provided for the various agencies of the metropolitan government as provided by ordinance.

(e) To transfer to or between using agencies, with the approval of public property director, sell or trade in supplies, materials or equipment determined by him or her, after consultation with the heads of the using departments or agencies concerned, to be surplus obsolete or unused.

(f) To perform such duties with regard to the letting of contracts for public works or improvements as are provided in this Charter, and to have such other powers and to perform such other duties as may be provided by ordinance.

(g) To submit a monthly report of his or her activities to the director of finance. The director of finance may assign the functions set forth in subsections (c), (d) and (e) of this section to some other division in his or her department. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 8.111. Competitive bidding for purchases or sales.

Before making any purchase or contract requiring expenditure of a sum in excess of one thousand dollars ($1,000), the purchasing agent shall take competitive bids, pursuant to Tennessee Code Annotated, Section 7-3-306, as the same may be amended, and under such rules and regulations as may be established by ordinance. Before making a sale the purchasing agent shall require competitive bids. The making of all other purchases or contracts by the purchasing agent shall be under such conditions, rules and regulations as may be prescribed by ordinance. The purchasing agent may reject any and all bids received for purchases or sales.

Editor's note—The first sentence of § 8.111 was amended by referendum election held November 5, 1996.

Sec. 8.112. Division of public property administration.

There shall be in the department of finance a division of public property administration, which shall consist of the director of public property and such other officers and employees, organized into such units as may be provided by ordinance or by the director consistent with ordinance. The director of public property administration shall be appointed for an indefinite term by the

mayor, subject to the civil service provisions of this Charter. The director of public property administration shall administer the duties of the department of finance arising from section 8.103 (k) and (l) of this Charter and shall perform such other duties as may be assigned by the director of finance or by ordinance.

RELATED FISCAL PROVISIONS

Sec. 8.113. Division of tax assessment created; metropolitan tax assessor.

There shall be, as an independent agency of the metropolitan government, a division of tax assessment, the head of which is designated as the metropolitan tax assessor. The county tax assessor, elected for a term of four (4) years and provided for by general law in Tennessee Code Annotated, sections 67-1-502 to 67-1-505, inclusive, shall be the metropolitan tax assessor. He or she shall have the same powers, duties and liabilities with respect to assessment of properties in the area of the metropolitan government as by general law and private act are possessed by or imposed upon county and municipal tax assessors, except as herein provided in this Charter. In ascertaining the value of property, the tax assessor shall give particular consideration to the extent to which availability or nonavailability of sewers and other governmental services affects the actual cash value of the property. The metropolitan tax assessor shall make merchants' ad valorem assessments[8] in and for both the general services district and the urban services district. The assessments made by him or her shall be the assessments to which the tax levy by the council for the general services district shall apply and to which the tax levy by the urban council for the urban services district shall apply. The assessor may assess all property annually and he or she shall separately total the assessments in the urban services district and the general services district. (Res. No. 88-526, § 6, 10-4-88; amended by referendum election of November 6, 2018, Amdt. 6)

8. Assignment by this Charter of duty of assessing merchants' ad valorem taxes to metropolitan tax assessor is a valid exercise of power under T.C.A., § 7-1-101 et seq., and is not an unconstitutional reduction of powers of county clerk. While office of county clerk is created by Constitution, his or her powers are established, and may be changed, pursuant to general law. Winter v. Allen, 212 Tenn. 84, 367 S.W. 2d 785 (1963).

Sec. 8.114. Compensation, surety bond, oath of office and assistants of tax assessor.

The metropolitan tax assessor's salary shall be fifteen thousand dollars ($15,000.00), per annum, payable semimonthly. This salary may not be changed during the four (4) years for which the tax assessor is elected.

The metropolitan tax assessor shall give surety bond as provided by Tennessee Code Annotated, section 67-1-505, in the case of county tax assessors, the same to be approved by the mayor. He or she shall take an oath of office as provided by Tennessee Code Annotated, section 67-1-507, for county tax assessors, the same to be filed in the office of the metropolitan clerk.

The metropolitan tax assessor shall be furnished with such deputies, office personnel, material and supplies as he or she may need for the proper functioning of his or her office and as may be provided by ordinance and by his or her annual budget appropriations. Deputies appointed by him or her shall have the powers and duties and liabilities of the tax assessor. All employees of the assessor other than these deputies shall be employed in accordance with civil service regulations. (Res. No. 88-526, §§ 7, 8, 10-4-88; amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.115. Vacancies in office of tax assessor.

Vacancies in the office of the metropolitan tax assessor shall be filled by the metropolitan county council. The person so appointed to fill a vacancy shall serve the remainder of the unexpired term, or until the first of September following the next regular August election, whichever is earlier. When a vacancy occurs more than thirty (30) days prior to a regular August election, at which a tax assessor is not to be elected for a full term, then a tax assessor shall be elected at such election for the remainder of the term.

Sec. 8.116. Division of property tax collections created; county trustee designated metropolitan trustee.

There shall be as an agency of the metropolitan government, a division of property tax collections, the head of which shall be the county trustee, sometimes herein called metropolitan trustee. He or she shall be elected for a four-year term as provided by general law. The trustee shall be furnished with such deputies, office personnel, material and supplies as he or she may need for the proper functioning of his or her office and as may be provided by ordinance within his or her annual budget appropriations or as may be approved by rulings of chancery court. Deputies appointed by him or her as approved in rulings by chancery court shall have the powers, duties and liabilities of the trustee. All employees of the trustee other than these deputies shall be employed in accordance with civil service regulations.[1]

The trustee shall collect and receive real and personal property taxes or tax equivalents and all merchants' ad

valorem taxes due the metropolitan government for the general services district and the urban services district. He or she shall daily remit the same to the metropolitan treasurer.[2] With respect to said real and personal property taxes and merchants' ad valorem taxes, the trustee shall have all the powers, duties and responsibilities vested by general law in county trustees as to state, county and municipal taxes, except as otherwise provided in this Charter.

For six (6) months after the aforementioned taxes shall become delinquent the trustee shall collect such taxes, as well as interest and penalties thereon. At the end of said six (6) months' period, the trustee shall transmit to the collections officer or to such other agency as may be designated by ordinance a balanced and reconciled report of all taxes remaining delinquent. Prior to such transmittal there shall be an internal audit by the division of accounts and after such transmittal it shall be the duty and responsibility of the collections officer or other designated agency to collect said delinquent taxes. (Amended by referendum election of November 6, 2018, Amdt. 6)

1. The requirement that persons other than deputies appointed by the metropolitan trustee be employed in accordance with civil service regulations is not so arbitrary as to violate due process, and supersedes conflicting general law. *Robinson v. Briley,* 213 Tenn. 418, 374 S.W. 2d 382 (1963).

2. Assignment by this Charter of duty of collecting merchants' ad valorem taxes to metropolitan trustee, which duty is assigned by general law to county clerk, is a valid exercise of power under T.C.A., § 6-3701 et seq., and supersedes the conflicting general law. *Winter v. Allen,* 212 Tenn. 84, 367 S.W. 2d 785 (1963).

The sole duty of the metropolitan trustee in regard to real and personal property taxes and merchants' ad valorem taxes is to collect such taxes or tax equivalents and remit them daily to the metropolitan treasurer. He or she may not retain them for payment of salaries, expenses, etc. The requirement that he or she remit such taxes daily is a valid requirement, and supersedes conflicting general law. *Robinson v. Briley,* 213 Tenn. 418, 374 S.W. 2d 382 (1963).

Sec. 8.117. Bond of metropolitan trustee.

The official bond of the metropolitan trustee shall be executed by a surety company authorized to transact business in Tennessee. The minimum amount of bond shall be fixed by ordinance, however it shall be at least equal to the minimum set forth in Tennessee Code Annotated, section 8-11-103, for county trustees.

It shall be the duty of the mayor to examine into the solvency of the trustee's bond and if the bond be found to be insufficient, as provided by law it shall be the duty of the mayor to notify him or her of the fact and to require him or her to give new or additional security in such sum as may be fixed upon by the council on the recommendation of the mayor. If the required bond or security be not given within one (1) month, it shall be the duty of the council, and it shall have the power, to declare the office vacant. (Res. No. 88-526, § 9, 10-4-88; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 8.118. Powers and duties of county court clerk.

There shall be as an independent agency of the metropolitan government, the office of county court clerk, the head of which shall be the county court clerk, elected for a term of four (4) years as provided by the constitution and the general laws of the state. The county court clerk shall be furnished with such deputies, office personnel, material and supplies as he or she may need for the proper functioning of his or her office and as may be provided by ordinance and within his or her annual budget appropriations. Deputies appointed by him or her as approved in rulings by chancery court shall have the powers and duties and liabilities of the county court clerk. All employees of the county court clerk, other than these deputies, shall be employed in accordance with civil service regulations. Nothing in this Charter is intended or shall be construed to alter or affect the powers, duties and responsibilities of the county court clerk as a collector of state privilege licenses or other state revenues or as the clerk of the probate court or monthly county court. However, all fees, revenues, incomes, commissions, emoluments and prerequisites of the office of county court clerk shall accrue to the metropolitan government and shall be deposited with the metropolitan treasurer daily, except as otherwise provided by ordinance.

Nothing in this section shall be construed as authorizing or empowering the county court clerk to assess or collect such taxes as may be provided for in the division of tax assessment, division of property tax collections and division of collections of the department of finance. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 8.119. Appointment of deputies of metropolitan trustee and county court clerk.

The metropolitan trustee and the county court clerk shall make application for the employment of deputies in accordance with the provisions of Tennessee Code Annotated, section 8-20-101. The above-named officer in his or her petition shall name the mayor as the party defendant thereto. (Res. No. 88-526, § 10, 10-4-88; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 8.120. Date taxes payable; interest and penalty for delinquency.

Ad valorem taxes, including merchants' ad valorem, due by reason of the tax levied in the general services district shall become due and payable on the first day of October in each year. The general laws with respect to collection, delinquency, interest, penalties and the lien of taxes shall be applicable to the general services district.

All ad valorem taxes, including merchants' ad valorem, due by reason of the tax levy in the urban services district shall become due and payable on the first of August of the year for which they are assessed, and that such taxes may be paid in two (2) installments, as follows: One-half of the tax to be paid between August 1 and September 30 the year for which they are assessed, without interest or penalty; and the remaining one-half after the first half is paid to be paid not later than January 10 without interest and penalty. The general laws with respect to collection, delinquency, interest, penalties and the lien of taxes shall be applicable to the urban services district except that the date of delinquency shall be January 11.

Sec. 8.121. Division of metropolitan audit.

A. There shall be, as an independent agency of the metropolitan government, a division of metropolitan audit, the director of which is designated as the metropolitan auditor. The metropolitan auditor shall be a person:

1. With a well founded reputation in government or public finance and the audit function as may be exhibited by a record of exceptional performance for at least five (5) years as a financial officer of a government or business;

2. Who has, through education and experience as an accountant, auditor, CFO, controller or principal accounting officer of a governmental entity or private business an understanding of Generally Accepted Accounting Principles, Governmental Auditing Standards Board standards, financial statements, internal controls and procedures for financial reporting, and the audit functions of a governmental entity.

B. The metropolitan auditor shall be appointed by a majority vote of the council from a list of three (3) persons recommended by the audit committee whom the audit committee deems best qualified and available to fill the position. If the council deems that the persons recommended by the audit committee to serve as metropolitan auditor are not suitable and/or qualified, the council shall reject the names submitted and the audit committee shall recommend three (3) additional persons deemed qualified and available to fill the position. The metropolitan auditor shall serve a term of eight (8) years but shall be subject to removal for cause during the term by a vote of four (4) members of the audit committee. The first term of the metropolitan auditor will end on June 30, 2014, regardless of whether the full eight (8) years has been served. A vacancy occurring during a term shall be filled temporarily with a qualified acting metropolitan auditor by the majority vote of the audit committee. The filling of the vacancy for the remainder of a term and for any new term shall be filled by a majority vote of the council through the process provided in this section.

C. The metropolitan auditor shall conduct, or cause to be conducted financial, performance and other audit services following Government Auditing Standards established by the United States Government Accountability Office, and the metropolitan auditor shall follow the independence and other professional standards established and published under Government Auditing Standards.

D. The metropolitan auditor shall appoint and remove, subject to the civil service provisions of article 12 of this Charter, all officers and employees of the division.

E. There shall be a metropolitan audit committee which shall be composed of six (6) members, as follows: The vice mayor and the director of finance shall be members by virtue of their official positions. Two (2) members of the metropolitan county council shall be selected by that body from its membership to serve a two (2) year term. One (1) member shall be selected by the Nashville Area Chamber of Commerce to serve a four (4) year term. One (1) member shall be selected by the Nashville Chapter of the Tennessee Society of Certified Public Accountants to serve a four (4) year term except that the member first selected shall serve a two (2) year term. Members shall be eligible to succeed themselves. The general provisions of article 11, chapter 1, of this Charter shall be applicable to the audit committee unless otherwise specified in this section.

F. The audit committee will oversee the annual audit plan and will review and evaluate at least annually the performance of the metropolitan auditor.

G. All audit reports issued by the metropolitan auditor are public documents and shall at all times, during business hours, be open for personal inspection by any citizen of Tennessee. (Amended by Res. No. RS2006-1487 (Amdt. 2), referendum election of November 7, 2006, Amdt. 3)

CHAPTER 2. DEPARTMENT OF METROPOLITAN POLICE

Sec. 8.201. Created.

There shall be a department of metropolitan police, which shall consist of the director thereof, and such other officers and employees of such ranks and grades as may be established by ordinance and which shall include such bureaus, divisions and units as may be provided by ordinance or by regulations of the director consistent therewith.

Sec. 8.202. Responsibility and powers of department.

The department of the metropolitan police shall be responsible within the area of the metropolitan government for the preservation of the public peace, prevention and detection of crime, apprehension of criminals, protection of personal and property rights and enforcement of laws of the State of Tennessee and ordinances of the metropolitan government.[3] The director and other members of the metropolitan police force shall be vested with all the power and authority belonging to the office of constable by the common law and also with all the power, authority and duties which by statute may now or hereafter be provided for police and law enforcement officers of counties and cities.

3. Designation of police department, rather than sheriff as principal conservator of the peace is a valid exercise of power under T.C.A., § 6-3701 et seq. *Metropolitan Government* v. *Poe,* 215 Tenn. 53, 383 S.W. 2d 265 (1964).

Sec. 8.203. Chief of police as director; his or her powers and duties.

The department of metropolitan police shall be under the general management and control of a director thereof, who is designated the chief of police. The chief of police shall establish zones and precincts and assign members of the department to their respective posts, shifts, details and duties consistent with their rank. He or she shall make regulations, with the approval of the mayor and in conformity with applicable ordinances, concerning the operation of the department, the conduct of the officers and employees thereof, their uniforms, arms and other equipment for their training. The chief of police shall be responsible for the efficiency, discipline and good conduct of the department. Orders of the mayor relating to the department shall be transmitted in all cases through the chief of police or in his or her absence or incapacity through an officer designated as acting chief. Disobedience to the lawful commands of the chief of police or violations of the rules and regulations made by him or her with the approval of the metropolitan mayor shall be grounds for removal or other disciplinary action as provided in such rules and regulations, subject to the civil service provisions of article 12 of this Charter. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 8.204. Appointment of director; filling other vacancies in department.

A permanent vacancy in the office of director shall be filled by appointment of the mayor, subject to the civil service provisions of this Charter and subject to qualifications to be prescribed by the civil service commission designed to secure a person especially qualified for the position by training and experience. A temporary vacancy in the office of director due to sickness, absence or other disability shall be filled by appointment of the mayor. A vacancy in any office, position or employment in the department shall be filled by appointment of the chief of police, subject to the approval of the mayor and consistent with the civil service provisions of this Charter.

Sec. 8.205. Special police.

The chief of police may appoint, in his or her discretion and upon the application of any individual, firm or corporation showing the necessity thereof, one or more special police officers, to be paid by the applicant, who shall have the powers and duties of police officers while in or on the premises of such applicant or in the actual performance of the duties for which employed. Special police officers shall be subject to the rules and regulations of the department of metropolitan police and their appointments shall be revocable at any time by the chief of police with the approval of the mayor. Before entering upon the performance of their duties, special police officers shall execute and file with the metropolitan clerk a public officer's liability bond in such amount as may be fixed by resolution of the metropolitan council. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 8.206. School crossing guard division.

The chief of police may establish, and shall establish if directed by ordinance, a school crossing guard division in the department. (Res. No. RS2012-277, § 1(Amdt. 4), 9-18-2012, election of 11-6-2012)

Sec. 8.207. Volunteer police reserve authorized.

The director may, and if directed by ordinance, shall establish a voluntary auxiliary police reserve to serve without compensation in cases of emergency and in aid of civil defense. Where established by the director, he or she shall promulgate rules, to be approved by the mayor,

for the organization and operation thereof. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 8.208. Qualifications of personnel.

After the effective date of this Charter,[4] no person shall be eligible to appointment to any position in the department except as a regular salaried employee in the classified service. Every appointee shall be a citizen of the United States of America unless otherwise allowed under Tennessee state law; shall meet such physical requirements as shall be prescribed by the civil service commission; and shall comply with all applicable rules and regulations of the civil service commission.

To determine whether applicants for positions in the department possess the required physical qualifications, the director of health may provide for conducting physical examinations and report his or her findings to the civil service commission. (Amended by referendum election of November 6, 2018, Amdt. 6; Res. No. RS2022-1475, § 1(Amdt. 2), (Amdt. 3, § VIII), 5-5-2022, election of 8-4-2022)

4. April 1, 1963.

Sec. 8.209. Salaries.

The annual compensation of the director, payable semimonthly, shall be twelve thousand ($12,000) dollars. The salaries of the other officers and employees of the department shall be as fixed in the pay plan adopted pursuant to article 12 of this Charter.

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.210. Work week and vacations.

Every member of the department shall be entitled to two (2) days off each week and to an annual vacation of twenty (20) days without deduction of pay. The time for vacations shall be determined and assigned by the chief of police. All members of the department shall be subject to call and assignment to duty at any time during an emergency.

CHAPTER 3. DEPARTMENT OF FIRE

Sec. 8.301. Created.

There shall be a department of fire, which shall consist of the director thereof, and such other officers and employees of such ranks and grades as may be established by ordinance and which shall include such bureaus, divisions and units as may be provided by ordinance or by regulations of the director consistent therewith.

Sec. 8.302. Function of department.

The department of fire shall be responsible for the protection against fire of life and property within the urban services district and within other areas covered by contracts authorized by ordinance.

Sec. 8.303. Fire chief as director; powers and duties.

The department of fire shall be under the management and control of a director thereof, who is designated the fire chief. He or she shall assign members of the department to stations, shifts, details and duties consistent with their rank. He or she shall make regulations, with the approval of the metropolitan mayor and in conformity with applicable ordinances, concerning the operation of the department, the conduct of the officers and employees thereof, their uniforms, arms and other equipment and their training. The fire chief shall be responsible for the efficiency, discipline and good conduct of the department. Orders of the mayor relating to the department shall be transmitted in all cases through the fire chief or in his or her absence or incapacity through an officer designated as acting chief. Disobedience to the lawful commands of the fire chief or violations of the rules and regulations made by him or her with the approval of the mayor shall be grounds for removal or other disciplinary action as provided in such rules and regulations, subject to the civil service provisions of article 12 of this Charter. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 8.304. Appointment of director; filling other vacancies in department.

A permanent vacancy in the office of director shall be filled by appointment of the mayor, subject to the civil service provisions of this Charter and subject to qualifications to be prescribed by the civil service commission designed to secure a person especially qualified for the position by training and experience. A temporary vacancy in the office of director due to sickness, absence or other disability shall be filled by appointment of the mayor.

A vacancy in any office, position or employment in the department shall be filled by appointment of the fire chief, subject to the approval of the mayor and consistent with the civil service provisions of this Charter.

Sec. 8.305. Fire prevention.

The department of fire shall recommend to the council for adoption as ordinances such rules and regulations for the prevention of fire as may appear necessary and proper. In the enforcement of such rules and regulations, when adopted, the department shall act through the fire marshal.

Sec. 8.306. Qualifications of personnel.

After the effective date of this Charter,[5] no person shall be eligible to appointment to any position in the department except as a regular salaried employee in the classified service. Every appointee shall be a citizen of the United States of America; shall meet such physical requirements as shall be prescribed by the civil service commission; and shall comply with all applicable rules and regulations of the civil service commission.

To determine whether applicants for positions in the department possess the required physical qualifications, the director of health may provide for conducting physical examinations and report his or her findings to the civil service commission. (Amended by referendum election of November 6, 2018, Amdt. 6; Res. No. RS2022-1475, § 1(Amdt. 3, § IX), 5-5-2022, election of 8-4-2022)

5. April 1, 1963.

Sec. 8.307. Salaries.

The annual compensation of the director, payable semimonthly, shall be twelve thousand ($12,000) dollars. The salaries of the other officers and employees of the department shall be as fixed in the pay plan adopted pursuant to article 12 of this Charter.

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.308. Work week and vacations.

Every member of the department shall be entitled to two days off each week and to an annual vacation of twenty days without deduction of pay. The time for vacations shall be determined and assigned by the fire chief. All members of the department shall be subject to call and assignment to duty at any time during an emergency.

CHAPTER 4. DEPARTMENT OF TRANSPORTATION AND MULTIMODAL INFRASTRUCTURE*

Sec. 8.401. Created.

There shall be a department of transportation and multimodal infrastructure, which shall consist of the director of transportation and multimodal infrastructure and such other officers and employees organized into such divisions and other units as may be provided by ordinance or by the orders of the director consistent therewith and approved by the mayor. (Res. No. RS2022-1475, § 1(Amdt. 4), 5-5-2022, election of 8-4-2022)

Sec. 8.402. Functions.

The department of transportation and multimodal infrastructure shall be responsible for:

(a) The design, construction, maintenance, repair, management and cleaning of roads, highways, streets, alleys, other public places, bridges, viaducts, and other related structures.

(b) Control of the servicing, maintenance and repair of automotive equipment, except as the same by ordinance may be assigned in whole or in part to another department or agency of the metropolitan government.

(c) Construction of transportation capital improvement projects by its own employees, whenever so authorized or directed by ordinance or by the mayor.

(d) Making and preparing such plans, specifications, estimates, surveys, maps, designs, drawings and reports as may be requested from time to time by the council, by the mayor or by the head of any department or any board, commission or agency of the metropolitan government acting with the approval of the mayor, and supervision of the execution and performance of all contracts for capital improvement projects, the plans and specifications, for which were prepared by the department of transportation and multimodal infrastructure.

(e) The administration and enforcement of all laws, ordinances and regulations relating to permits and licenses, for, building and construction within the public rights-of-way, taxicabs and other passenger vehicles for hire, parking, and public gatherings within the public rights-of-way; provided, that all licenses and permits issued shall be approved or regulated by such other offices, agencies or boards of the metropolitan government as may be provided from time to time by ordinance; and provided further, that the council may by ordinance transfer and assign this function to a newly created department of licenses and permits.

(f) The design, deployment, operations, and maintenance of traffic control devices on local roads and conventional state routes in Davidson County, except for certain devices within the incorporated cities that are owned by those cities. This includes the maintenance of all regulatory and warning signs on conventional state routes, to the extent not handled by the Tennessee Department of Transportation.

(g) Such other powers and duties as are assigned to the department by this Charter or may be assigned

*Editor's note—Res. No. RS2022-1475, § 1(Amdt. 4), adopted May 5, 2022, referendum election of August 4, 2022, repealed the former Ch. 4, §§ 8.401—8.406, and enacted a new Ch. 4 as set out herein. The former Ch. 4 pertained to department of public works, and derived from Res. No. RS2012-277, § 1(Amdts. 2, 5), 9-18-2012, election of 11-6-2012; Amdt. 6, election of 11-6-2018.

thereto by ordinance or by action of the mayor. (Res. No. RS2022-1475, § 1(Amdt. 4), 5-5-2022, election of 8-4-2022)

Sec. 8.403. Supervision, certification, and approval of payment for certain capital improvement projects.

Unless otherwise specifically provided for in this Charter, no payment upon any contract for transportation capital improvement projects or any capital improvement projects within the public rights-of-way shall be made by the metropolitan government without the written certification of the director of transportation and multimodal infrastructure that the work or the portion thereof for which such payment is to be made has been satisfactorily performed in accordance with the terms of such contract. Unless otherwise specifically provided in this Charter, when the plans and specifications for any transportation capital improvement project or any capital improvement project in the public rights-of-way have been prepared by some person or agency other than the department of transportation and multimodal infrastructure, the performance of the contract may be supervised and certification required by the department of transportation and multimodal infrastructure before payment shall be made in accordance with the terms and provisions of the contract. (Res. No. RS2022-1475, § 1(Amdt. 4), 5-5-2022, election of 8-4-2022)

Sec. 8.404. Director of transportation and multimodal infrastructure—Qualifications and compensation.

The head of the department of transportation and multimodal infrastructure shall be the director. A permanent vacancy in the office of director shall be filled by appointment made by the mayor, subject to the civil service provisions of this Charter. He or she shall have had at least five (5) years' experience in industry or in municipal or metropolitan departments of transportation. In the event of temporary vacancy in the office of director due to sickness, absence or other disability, a temporary appointment may be made by the mayor, subject to the civil service provisions of this Charter. (Res. No. RS2022-1475, § 1(Amdt. 4), 5-5-2022, election of 8-4-2022)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.405. Same—Powers and duties.

The director of transportation and multimodal infrastructure shall have general management and control of the several divisions and units of the department. He or she shall appoint and remove, subject to the civil service provisions of article 12 of this Charter, all officers and employees of the department and shall have power to make rules and regulations for the conduct of the business of the department consistent with this Charter and the ordinances of the metropolitan government. (Res. No. RS2022-1475, § 1(Amdt. 4), 5-5-2022, election of 8-4-2022)

Sec. 8.406. Custody of maps and plans.

The department of transportation and multimodal infrastructure shall have custody of all maps or plans or any part thereof which were on file immediately prior to the effective date of this Charter[6] in the offices of the director of public works of the City of Nashville or the County Highway Engineer of the County of Davidson and all such maps and plans hereafter made and not expressly required by law or ordinance to be filed in some other place; provided, that all plans, records, etc., pertaining to the sanitary sewerage system which are in the custody of the department of transportation and multimodal infrastructure on the effective date of this Charter shall be turned over to the department of water and sewerage services. (Res. No. RS2022-1475, § 1(Amdt. 4), 5-5-2022, election of 8-4-2022)

6. April 1, 1963.

CHAPTER 5. DEPARTMENT OF WATER AND SEWERAGE SERVICES

Sec. 8.501. Created.

There shall be a department of water and sewerage services, which shall consist of the director and such other officers and employees, organized into such divisions and other units as may be provided by ordinance or by the orders of the director consistent therewith.

Sec. 8.502. Functions.

The department of water and sewerage services shall be responsible for: (1) The construction, operation, and maintenance of all water and sanitary sewer facilities of the metropolitan government; (2) The construction, operation, and maintenance of stormwater facilities of the metropolitan government; (3) The collection of all charges for the services of such utilities; (4) Such other powers and duties as may be assigned to the department by ordinance. (Res. No. RS2012-277, § 1(Amdt. 5), 9-18-2012, election of 11-6-2012)

Sec. 8.503. Director of water and sewerage services—Qualifications and compensation.

The head of the department of water and sewerage services shall be the director, whose annual compensa-

tion, payable semimonthly, shall be fifteen thousand ($15,000) dollars. A permanent vacancy in the office of director shall be filled by appointment made by the mayor, subject to the civil service provisions of this Charter. He or she shall be a graduate engineer who is trained and skilled in public utility problems and shall have had at least five (5) years' experience in an executive or major administrative position in a public utility operation or public utility administration. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.504. Same—Powers and duties.

The director of water and sewerage services shall have general management and control of the several divisions and units of the department, including the approval of all departmental requisitions for purchases and services. No payment from the funds of the department of water and sewerage services shall be made until such payments shall have been certified as due and correct by the director of the said department; this includes the certification as to the satisfactory performance of all contracts and services in connection with the operation, maintenance, and expansion of the said depart-

ment. The director shall approve all plans and specifications relating to the expansion, operation, and maintenance of the water and sewerage system. He or she shall appoint and remove, subject to the civil service provisions of article 12 of this Charter, all officers and employees of the department and shall have power to make rules and regulations for the conduct of the business of the department consistent with this Charter and the ordinances of the metropolitan government. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 8.505. Division of billing and collection.

There shall be established within the department, a division of billing and collection, which shall be responsible for the collection of all charges for the use of water, sewage disposal, and other services incident thereto.

Sec. 8.506. Accounting system.

The accounting system established by the department shall be in conformity with accepted utility accounting practices and shall be approved by the director of finance and generally correlated with the central finance and accounting system of the metropolitan government.

Sec. 8.507. Revolving funds.

The revolving fund used in the operation of the waterworks system of the former City of Nashville, as provided in section 15 of article 22 of chapter 246 of the Private Acts of 1947, is hereby continued in full force and effect for the use and benefit of the department of water and sewerage of the metropolitan government. This fund shall be used solely for paying the cost of improvements or extensions of the water system of the metropolitan government and for the purpose of making replacements in said system or purchasing and installing new capital equipment as part of said system. Whenever money in such fund shall be used for said purposes, the money so used shall be replaced in said fund from the first revenues received from the operation of the waterworks system which are not pledged for some other purpose until the fund is again restored to the amount of two hundred thousand ($200,000) dollars; provided, however, that revenues so used for the purpose of replacing money expended from such fund shall not be required to be so used in any one year in an amount exceeding ten (10%) percent of the gross revenues received from the operation of the waterworks system in such year. The council, in its discretion, may provide for the placing of additional revenue in such fund for the purpose of establishing it in a larger amount than the minimum of two hundred thousand ($200,000) dollars herein provided. No proceeds of such fund shall be used for the payment of current costs of operating and maintaining the waterworks system of the metropolitan government or for the purchase of tools, operating supplies or similar equipment. No provision of this section shall be construed to authorize the issuance of additional bonds for the foregoing purposes.

Sec. 8.508. Establishment of and changes in rates.

The mayor and council are authorized and directed to establish the rates for water and sewerage services and to provide the methods for changes therein.

CHAPTER 6. DEPARTMENT OF LAW

Sec. 8.601. Created.

There shall be a department of law, which shall consist of the director thereof, of other personnel hereinafter mentioned and of such other positions and employees as may be provided by ordinance or by regulations of the director consistent with ordinance.

Sec. 8.602. Functions.

The department of law shall have the power and its duty shall be to perform the following functions

(a) Supervise, direct and control all of the law work of the metropolitan government, except with respect to the electric power board, which, having its own general counsel, is excepted from the provisions of this chapter.

(b) Furnish legal advice to the mayor, to the council and to all officers, departments, boards and commissions concerning any matters arising in connection with the exercise of their official powers or performance of their official duties.

(c) Represent the metropolitan government in all litigation.

(d) Collect by suit or otherwise all debts, taxes and accounts due the metropolitan government which shall be placed with it for collection by any officer, department, board or commission.

(e) Prepare or approve all contracts, bonds, deeds, leases or other instruments in writing in which the metropolitan government is concerned.

(f) Prepare or assist in preparing' for introduction any proposed ordinance upon request of the mayor or any member of the council.

(g) Codify and cause to be published in convenient book form once in every five (5) years all of the general ordinances which are still in effect, with compilation and publication annually of a supplement thereto. The first general codification shall be published within one

(1) year after the first director of law assumes office under this Charter, unless the council by resolution shall extend the time therefor.

(h) Perform such other duties as may be assigned to it by ordinance.

Sec. 8.603. Appointment, qualifications, compensation and powers and duties of director of law; designated metropolitan attorney.

The department of law shall be under the supervision and control of the director of law, who is designated the metropolitan attorney. The metropolitan attorney shall be appointed by the mayor for a term which terminates with the term of the mayor making the appointment. He or she shall be confirmed by a majority vote of the total membership of the council. He or she shall have been a member of the bar of Tennessee for at least five (5) years preceding his or her appointment and also have been a resident of the area of the metropolitan government for a like period. His or her annual compensation, payable semimonthly, shall be fifteen thousand ($15,000) dollars. The metropolitan attorney shall appoint all officers and employees of the department and may remove them, subject to the civil service provisions of article 12 of this Charter. The director of law shall determine and assign to the members of his or her staff and other employees of the department their respective duties and responsibilities, except as provided in the transitional provisions of this Charter. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.604. Deputy director of law.

There shall be a deputy director of law, designated as the deputy metropolitan attorney, who shall be appointed by the director of law, subject to the approval of the mayor. The qualifications of the deputy director of law shall be those hereinabove specified for the director of law and his or her compensation shall be twelve thousand ($12,000) dollars per annum, payable semimonthly. The deputy director of law shall be under the supervision and direction of the metropolitan attorney and shall assist him or her in the organization, administration and control of the department of law. In the absence of the director of law or in the event of a vacancy in his or her office, the deputy director of law shall perform the duties thereof until the director returns or the vacancy is filled. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.605. Assistant metropolitan attorneys.

There shall be four (4) assistant metropolitan attorneys who shall be appointed by the director of law, subject to the approval of the mayor, and each of whose compensation shall be seventy-five hundred ($7500) dollars per annum, payable semimonthly. The council may by ordinance create additional positions of assistant metropolitan attorney and fix the compensation of such positions, not to be higher than the minimum salary then being paid to an assistant metropolitan attorney. All assistant metropolitan attorneys shall perform such work of the department as may be assigned to them by the director.

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.606. Director of law and others not to engage in private practice.

The metropolitan attorney, the deputy metropolitan attorney and all assistant metropolitan attorneys shall devote their entire time and attention to the business of the department of law, and shall not engage in the private practice of law.

Sec. 8.607. Employment of special counsel restricted and provided for.

No department, board, commission or other agency of the metropolitan government may employ special counsel. Whenever the interests of the metropolitan government require special counsel, the council, by resolution, may authorize the mayor to employ such counsel, who shall be paid such compensation for his or her service as the mayor, the director of law and the director of finance shall determine to be reasonable compensation for the services rendered, and as the council shall by resolution approve. The employment of bond counsel shall not be considered as the employment of special counsel for purposes of this section.

When the interests of the metropolitan council require legal counsel, the council, by resolution, may authorize the vice-mayor to employ such legal counsel, who shall be paid such compensation for his or her services as the council shall determine to be reasonable compensation for the services rendered, and as the council shall by resolution approve. Such resolution shall not require the approval of the mayor, the director of finance or the director of law. (Res. No. 72-380, § 1, 11-7-72; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 8.608. Certain personnel of department not under civil service.

The metropolitan attorney, the deputy metropolitan attorney, their respective private secretaries and assistant

metropolitan attorneys shall not hold civil service status, except as expressly provided in the transitional provisions of this Charter.

Sec. 8.609. Amending Charter references to state statutes.

Upon the renumbering of any sections of the Tennessee Code Annotated to which this Charter makes reference, said references in the Charter shall be renumbered to properly identify the renumbered sections of the Tennessee Code Annotated after compliance with the following procedure. The metropolitan attorney, after review and approval by the Charter revision commission, shall submit the proposed changes to the metropolitan council for approval by resolution. Upon approval by the metropolitan council, a certified copy of the approving resolution shall be delivered to the secretary of state and to the metropolitan clerk who shall attach the same to the copy of the Charter in his or her custody. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—The addition of § 8.609 was approved at an election held Aug. 4, 1983.

CHAPTER 7. DEPARTMENT OF AVIATION*

***State law reference—**Airport Authorities Act, T.C.A. § 42-3-101 et seq.; Metropolitan Airport Authority Act, T.C.A. § 42-4-101 et seq.

Sec. 8.701. Created.

There shall be a department of aviation, which shall consist of the director of aviation and such other officers and employees as may be provided by ordinance.

Sec. 8.702. Functions.

The department of aviation shall be responsible (1) for the operation, maintenance and control of the Nashville Metropolitan Airport and other airports owned or operated in whole or in part by the metropolitan government, and (2) for such related activities and duties as may be prescribed by ordinance.

Sec. 8.703. Director of aviation—Qualifications, appointment and compensation.

The head of the department of aviation shall be the director, whose annual compensation, payable semimonthly, shall be twelve thousand ($12,000) dollars. A permanent vacancy in the office of the director shall be filled by appointment made by the mayor, subject to the civil service provisions of this charter. He or she shall be a person with experience in an executive or major administrative position in municipal or other public airport operations and familiar with the rules and regulations of the authorized governmental agencies concerning airport operations and aeronautic requirements. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 8.704. Same—Powers and duties.

The director of aviation shall have the general management and supervision of the department of aviation. He or she shall appoint and remove, subject to the civil service provisions of Article 12 of this charter, all other officers and employees. He or she shall have power to make rules and regulations consistent with this charter and with applicable ordinances for the conduct of the business of the department. (Amended by referendum election of November 6, 2018, Amdt. 6)

ARTICLE 9. PUBLIC SCHOOLS*

***Editor's note—**A referendum petition approved by the voters at an election held Nov. 4, 1980, substituted the term "metropolitan board of public education" for the terms "metropolitan county board of education" and "metropolitan board of education" wherever they appear in art. IX, §§ 9.01, 9.03—9.14. The petition also amended § 9.02 in its entirety.

Sec. 9.01. Public school system established.

A system of public schools for the Metropolitan Government of Nashville and Davidson County is hereby established, which shall be administered and controlled by the metropolitan board of public education, sometimes in this article called "the board."

Sec. 9.02. Board of education—Term and selection of members.

The metropolitan county board of education shall be abolished and there is established in its place the metropolitan board of public education, to succeed to all powers, duties, prerogatives, and functions of the present metropolitan county board of education. This abolishment shall take place ten (10) days following the certification of the election of members of the metropolitan board of public education.

The metropolitan board of public education shall be composed of nine (9) members whose terms of office shall be six (6) years each and shall be so staggered that the terms of three (3) members expire every two (2) years. The election of board member shall take place at the first general election following the adoption of this referendum. One (1) member of the board shall be elected from each of the school districts herein defined, and no member shall be elected from a school district wherein another incumbent member resides. Any member who shall change his or her place of residence from one

school district shall thereby vacate his or her office. The school districts from each of which one (1) member shall be elected shall be as follows:

School District Number 1 shall include Councilmanic Districts Nos. 1, 3, 10, and that part of 9 which lies north of Neelys Bend Road; west of Kinsey Boulevard; north of New Providence Pass, and Manzano Road; west of Fawn Lane; north of Warrior Road; west of Sandhurst Drive; north of East Old Hickory Boulevard.

School District Number 2 shall include Councilmanic Districts Nos. 28, 29, 30, 31.

School District Number 3 shall include Councilmanic Districts Nos. 6, 7, 8, and that part of 4 which lies east of Ellington Parkway, and that part of 9 which lies south of Neelys Bend Road; east of Kinsey Boulevard; south of New Providence Pass, and Manzano Road; east of Fawn Lane; south of Warrior Road; east of Sandhurst Drive; south of East Old Hickory Boulevard.

School District Number 4 shall include Councilmanic Districts Nos. 11, 12, 15, 14.

School District Number 5 shall include Councilmanic Districts Nos. 2, 5, 20, and that part of 4 which lies west of Ellington Parkway.

School District Number 6 shall include Councilmanic Districts Nos. 13, 16, 26, 27.

School District Number 7 shall include Councilmanic Districts Nos. 17, 18, 19, 21.

School District Number 8 shall include Councilmanic Districts Nos. 25, 32, 33, 34.

School District Number 9 shall include Councilmanic Districts Nos. 22, 23, 24, 35.

The first election of the nine-member board shall be as follows:

Of the nine (9) members elected, the three (3) members receiving the largest number of votes shall be elected for a term of six (6) years, the three (3) members receiving the next largest number of votes shall be elected for a term of office of four (4) years and the remaining three (3) members shall be elected for a term of office of two (2) years.

After the election of the first board, elections for replacing retiring members shall be at the first countywide general election each two (2) years thereafter.

The school districts herein established may be altered in a plan for redistricting councilmanic districts adopted pursuant to section 18.06 of this Charter.

No person shall be eligible to serve as a member of the board unless (a) he or she shall have attained the age of twenty-five (25) years at the beginning of his or her term; (b) shall have been a resident of the area of Metropolitan Government of Nashville and Davidson County for a period of five (5) years and one (1) year in the school district from which he or she is elected; (c) shall be a qualified, registered voter. Further, candidates for the board and members of the board shall hold no other elective or appointive public office. Candidates for membership on the metropolitan board of public education shall comply with the provisions for candidates for public office in title 2 Tennessee Code Annotated.

In the event a vacancy should occur for any reason other than the expiration of the term of a board member, the vacancy shall be filled by the metropolitan council in accordance with the provisions of Tennessee Code Annotated, section 49-2-201(a)(1). Persons eligible for appointment shall reside within the school district in which the vacancy occurs to and shall serve until the next countywide general election, at which time a person shall be elected for the remainder of the unexpired term.

Effective September 1, 2003, members of the metropolitan board of public education may be compensated at a rate as may be approved by the metropolitan county council as part of the general pay plan under the provisions of Section 18.05. (Amended by Ord. No. 71-1389, § 2, 5-4-71; Bill No. 81-701, § 2, 10-6-81; Res. No. 88-526, § 11, 10-4-88; Res. No. R98-1073, § 1, 3-25-98; Res. No. 2003-1474 § 1, 8-7-03; amended by Res. No. RS2019-1720 (Amdt. 2) on August 1, 2019)

Editor's note—In addition to the legislation given in the history note, § 9.02 was amended in its entirety by virtue of a referendum petition approved Nov. 4, 1980. Areas included in the districts were amended by referendum approved by the voters Sept. 5, 1991.

Editor's note—As a result of the enactment of Tennessee Code Annotated § 49-2-201, School Districts 2 and 5 were renumbered 5 and 2 respectively such that no School Board member's term was shortened.

Sec. 9.03. Same—Powers.

The board is authorized to do all things necessary or proper for the establishment, operation and maintenance of an efficient and accredited consolidated school system for the metropolitan government, not inconsistent with this Charter or with general law, including but not limited to the following actions, all to be taken after receiving the recommendations thereon of the director of schools: The employment and fixing of the compensation of all persons necessary for the proper conduct of the public schools; the maintenance and preservation of school property, the management and safeguarding of school funds; the acquisition of school sites; the erection, maintenance and improvement of school buildings and additions thereto; the purchase of school equipment, furniture, apparatus, supplies and the like; the provision of group insurance of not less than five hundred dollars ($500.00) each on its employees and teachers; and the

promulgation of plans, rules and regulations for the administration, operation and maintenance of a public school system.

Purchases of the board shall be consistent with the procedures established concerning competitive bidding as provided in section 8.111 of this Charter. In that respect, the board shall adopt appropriate rules and regulations concerning purchasing, including the establishment and enforcement of standard specifications for all supplies, materials and equipment required by the board and which it has authority to purchase or lease.

The board shall also have all powers and duties conferred by general law upon county boards of education and city boards of education, including, but not limited to, Tennessee Code Annotated, section 49-2-203 excepting only as otherwise provided in this Charter.

The system of furnishing free textbooks in the public schools of the city and county and receiving and accepting state aid therefor in effect at the time of the adoption of this Charter [April 1, 1963] shall be continued, unless and until changed by ordinance of the council upon recommendation of the board. (Res. No. 88-526, § 12, 10-4-88)

Sec. 9.04. Same—Duties; referendum as to school budget.

In addition to other duties imposed by this Charter or by general law, it shall be the duty of the metropolitan board of public education to:

1. Hold regular monthly meetings which shall be open to the public.

2. Adopt and make available for distribution rules, regulations and a statement of policies, including (a) the manner and method of operating the metropolitan school system and its properties, (b) the manner and method of employing personnel, (c) all personnel policies and any requirements with reference to teaching personnel or nonteaching personnel, salaries, vacations, sick leave, job security and retirement policy; and (d) the manner and extent of use which may be made of the public buildings under the control of the board.

3. Hold public hearings on the operational school budget prior to its approval by the board, and thereafter to submit to the mayor through the director of finance the budget for schools. If the operational school budget adopted by the council is in the opinion of a two-thirds majority of the entire membership of the board insufficient and inadequate to meet the needs of public education, then the board is authorized to take the following action with respect thereto:

Not later than thirty (30) days prior to the first Thursday in August, the board by a two-thirds majority of its entire membership shall adopt a resolution declaring that in addition to funds appropriated for the operational school budget as adopted by the council, an amount of money (to be specified in the resolution) is necessary; that the specified amount will be produced by an additional tax levy of a stated number of mills (to be specified in the resolution), and that the board by such resolution calls for and initiates a referendum election to determine whether such additional tax shall be levied and the total revenues thereby raised shall be added to the operational school budget. For the purpose of calculating the tax increase necessary, the board shall procure from the director of finance, who shall furnish the same immediately upon request, the amount of revenue which an additional tax of one (1) mill is anticipated to produce, and on this basis calculate the additional tax necessary to raise the additional school funds sought. A certified copy of such resolution shall immediately be transmitted to the council and to the board of county commissioners of election, which shall order and conduct a special referendum election on the first Thursday in August, the same to be held simultaneous with, and as a part of, the general August election if the year be an even one.

In addition, the Board may take the action outlined in the preceding paragraph to provide additional funding for capital improvements eligible for funding in the capital improvements budget established pursuant to Section 6.13 of the Metropolitan Charter. For purposes of this section, capital improvements include renovations, repairs, maintenance, new construction of any building, structure, work, or improvement and technology, instructional and safety equipment.

The notice of election and the ballot for such referendum on the operational school budget shall provide substantially as follows:

Referendum Election as to increased operational school budget of $ (here fill in the additional amount which the Board has certified as necessary) and an increase of (here fill in amount which the Board has certified as necessary) mills in tax rate thereby necessitated.

For Increase_____

Against Increase_____

The result of the special election on the operational school budget shall be certified by the commissioners of election to the director of finance and to the county trustee. If the majority of voters favor said increase, then the previously adopted tax levy for the general services district shall be deemed accordingly amended and increased and the previously adopted operational school budget shall be deemed accordingly amended and increased. If the majority of voters do not favor said increase, then both the tax levy and the operational school budget shall remain as previously adopted.

If the Board, not later than thirty (30) days prior to the first Thursday in August, adopts a resolution calling

for a referendum to increase funding for capital improvements, the notice of election and the ballot for such referendum shall provide substantially as follows:

Referendum Election to increase funding for capital improvements in the amount of $ (here fill in the additional amount which the Board has certified as necessary), and an increase of (here fill in amount which the Board has certified as necessary) mills in the current tax rate thereby necessitated.

For Increase_____

Against Increase_____

If the Board adopts a resolution calling for a referendum to fund capital improvements outside of the time period described above, the notice of election and the ballot for such referendum shall provide substantially as follows:

Referendum Election to authorize funding for capital improvements in the amount of $ (here fill in amount which the Board has certified as necessary) for the upcoming fiscal year beginning on July 1, 19____ (here fill in first day of next fiscal year), and an increase not to exceed (here fill in amount which the Board has certified as necessary) mills in the tax rate for the upcoming fiscal year.

For Increase_____

Against Increase_____

The result of the special election to increase funding for capital improvements shall be certified by the commissioners of election to the director of finance and to the county trustee. With respect to special elections on capital improvements called pursuant to a resolution adopted by the Board not later than thirty (30) days prior to the first Thursday in August, if the majority of voters favor said increase, then the previously adopted tax levy for the general services district shall be deemed accordingly amended and increased and the previously adopted appropriation for capital improvements shall be deemed accordingly amended and increased. If the majority of voters do not favor said increase, then both the tax levy and the appropriation for capital improvements shall remain as previously adopted. With respect to special elections on capital improvements called pursuant to a resolution adopted by the Board outside the time period described above, if the majority of voters favor said increase, then the additional tax levy shall take effect the following fiscal year, unless the budget appropriation for capital improvements for the following fiscal year includes the additional revenues authorized by the special election.

From and after the issuance of tax bonds or notes for the Board to fund capital improvements from the revenues generated by the additional tax levy for capital improvements authorized by this section, there shall be included in the annual tax levy ordinance for education for the general services district, over and above all other taxes assessed therein, a sum sufficient to meet the interest and redemption charges on such tax bonds or notes due or to be paid in the ensuing year, together with a sum sufficient to reimburse the general fund for any appropriation made or to be made therefrom for the payment of any such interest or redemption charges.

The cost of any special election authorized by this section shall be paid out of the general fund of the general services district.

Sec. 9.05. Same—Employment of director of schools.

The metropolitan board of public education is authorized to designate a person experienced in public school management and supervision and possessing a certificate of qualification issued by the state board of education pursuant to Tennessee Code Annotated, section 49-2-301(a), as the chief administrative employee of the board, and to enter into an employment contract with such person for a period not exceeding five (5) years and for a compensation to be determined therein. The person so designated and employed shall be known as the "metropolitan director of schools." The metropolitan board of public education is authorized to assign to the metropolitan director of schools such duties and responsibilities as are necessarily, usually or properly assigned to a city superintendent of schools or to a county superintendent of schools. (Res. No. 88-526, § 13, 10-4-88)

Sec. 9.06. Pension rights of educational employees of county and city protected.

All rights and benefits which any person has acquired under a pension plan established for the benefit of teachers in the school system of Davidson County shall be preserved and continued, and all rights and benefits which any person has acquired as a nonteaching employee of the county board of education in the Davidson County Pension Fund shall be preserved and continued. All rights and benefits which any person has acquired under the teachers pension department and fund of the City of Nashville shall be preserved and continued, and all rights and benefits which any person has acquired as a nonteaching employee of the city board of education in the civil service employees pension fund of the City of Nashville shall be preserved and continued. Every person whose rights are preserved and continued by this section shall be entitled to participate in the applicable pension plan or fund on the terms and conditions in effect

immediately prior to the effective date of this charter, except as such terms and conditions may be changed by applicable general law.

Sec. 9.06.1. Benefit increase plan.

The board of public education may recommend increase in benefits to members of pension plans set forth in section 9.06. Upon recommendation by the board of public education, the plan for increased benefits shall be submitted to the mayor through the director of finance. The mayor shall approve or disapprove the plan and forward same to the council. Upon disapproval, the mayor shall attach a statement indicating his or her reasons for disapproval.

The council shall (1) adopt the benefits increase plan, or (2) reject it. Adoption or rejection shall be by resolution not requiring the approval of the mayor. When a benefit increase plan is rejected by the council, it shall be returned to the metropolitan board of public education which may thereupon formulate another benefit increase plan and transmit the same to the mayor through the director of finance under the provisions set forth above. The plan for increase in benefits shall be adopted effective at the beginning of the next fiscal year, except the effective date for the fiscal year beginning July 1, 1972, shall be as stated by the adopting resolution. (Res. No. 72-380, § 1, 11-7-72; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 9.07. Pension and retirement plan for metropolitan teachers; voluntary transfer thereunder of city and county teachers.

The metropolitan board of public education shall establish an actuarially sound pension and retirement plan for teachers. Such plan shall be applicable to teachers employed by the metropolitan board of public education who were not employed in the county school system or the city school system immediately prior to the effective date of this Charter. Such plan shall make provision for the transfer thereunder of teachers who were employed in either the school system of the City of Nashville or the school system of Davidson County when such teachers apply for such transfer and meet conditions of transfer specified by the plan. The metropolitan board of public education is authorized in its discretion to integrate its pension and retirement plan for teachers with the Federal Insurance Contributions Act, or other applicable state or federal legislation.

Sec. 9.08. Tenure rights of county and city teachers protected.

Any person employed in the school systems of the City of Nashville and of Davidson County who has acquired tenure as a teacher under sections 49-5-501 to 49-5-514, inclusive, of Tennessee Code Annotated, or under any private act, shall retain such tenure in the metropolitan school system established by the consolidation of said school system. (Res. No. 88-526, § 14, 10-4-88)

Sec. 9.09. Disabilities of board members and council members to make adverse contracts or own school warrants.

Members of the metropolitan board of public education and members of the council shall be under the same disabilities as to making adverse contracts with the metropolitan board of public education or as to owning school warrants as are established by general law for members of county boards of education and justices of the peace.

Sec. 9.10. Civil service as to teachers and other educational employees.

The metropolitan board of public education shall constitute a civil service board for the purpose of investigating and hearing charges against any teacher and for the purpose of dismissing, suspending or otherwise disciplining the same and for the purpose of section 12.09 of this Charter. In the discharge of its duty as a civil service board, the metropolitan board of education is authorized to make rules and regulations. The provisions of section 12.11 of this Charter with reference to offenses against civil service and disabilities of civil service employees shall be applicable to all nonteaching employees of the board of public education. Any teacher suspended or dismissed may obtain a judicial review as provided in section 49-5-513 of Tennessee Code Annotated, the same being a portion of the Teachers' Tenure Act. Any nonteaching employee of the board may have his or her dismissal reviewed by the court in the same manner provided by section 12.07(h) for classified employees. (Res. No. 88-526, § 15, 10-4-88; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 9.11. No diversion of funds.

No funds which have been appropriated for the use of, or transferred to, the metropolitan school system shall be diverted from that use for any other purpose.

Sec. 9.12. Transfer of school funds within school budget.

The board shall have power at any time to transfer funds within the major items of its budget. It shall also have power to make transfers of funds to, from or between major items in its budget, provided such transfers are not inconsistent with the general law.

Sec. 9.13. Transfers to school fund from general funds; borrowing money.

The metropolitan council by resolution approved by the mayor, may transfer funds to the school fund from the general fund or general accounts of the metropolitan government, or may issue short term anticipation notes to provide such funds if in its judgment it is necessary and proper to provide temporary advances or transfers for the maintenance and operation of the schools. Such temporary advances or transfers shall be repaid or restored out of school funds during the ensuing year.

Sec. 9.14. Acquisition and sale of property.

All school property heretofore belonging to the County of Davidson and all school property heretofore belonging to the City of Nashville shall belong to the Metropolitan Government of Nashville and Davidson County for the use and benefit of the board of education, and the title to all school property hereafter acquired shall be vested in the Metropolitan Government of Nashville and Davidson County for the use and benefit of the board of public education. The board of public education is hereby designated as the legal custodian of all school property; and when in the judgment of said board any property held by it is no longer suited or needed for school purposes, said board is hereby authorized, with the approval of the council and mayor, to sell such property and have the proceeds credited to the unappropriated school fund of the metropolitan government.

In acquiring or selling property, the board shall cooperate closely with the planning commission, whose recommendation shall be sought and carefully considered by the board.

ARTICLE 10. PUBLIC HEALTH AND HOSPITALS

CHAPTER 1. PUBLIC HEALTH

Sec. 10.101. Metropolitan board of health—Created.

There shall be a metropolitan board of health which shall oversee administration of the Metro Public Health Department as herein provided. (Res. No. RS2022-1475, § 1(Amdt. 3, § I), 5-5-2022, election of 8-4-2022)

Sec. 10.102. Same—Qualifications, term and selection of members.

The board shall be composed of seven (7) members. One (1) member shall be a doctor of medicine or osteopathy certified for practice as such by the state board of medical examiners or board of osteopathic examination, licensed by the state licensing board for the healing arts, and who shall have had not less than five years' experience in the active practice of his or her profession. One (1) member shall be a licensed mental health professional who shall have not less than five years' experience in the active practice of his or her profession. One (1) member shall be a registered nurse. Two (2) members of the board shall be chosen without reference to occupation, except that they shall not come from the medical profession.

Two (2) members shall come from any of the following categories:

- A doctor of medicine or osteopathy certified for practice in Tennessee by the Board of Medical Examiners or Board of Osteopathic Examination;
- A practitioner in an allied health field with a background in the practice of public health;
- An attorney licensed to practice law by the Tennessee Board of Law Examiners;
- A veterinarian licensed by the Tennessee Board of Veterinary Medical Examiners;
- A dentist licensed to practice by the Tennessee Board of Dentistry;
- A person with a background in environmental health practice or policy;
- A person with an advanced degree in public health;
- A person with a background as a community health worker.

The members of the board shall be appointed by the mayor and confirmed by a majority of the whole membership of the council. They shall serve terms of five (5) years each. Any vacancy other than by expiration of term shall be filled for the unexpired term. Members of the board shall serve without compensation. The terms of board members shall be staggered to ensure no more than three seats are vacated in a given year.' (Res. No. 76-172, 9-16-76; amended by referendum election of November 6, 2018, Amdt. 6; Res. No. RS2022-1475, § 1(Amdt. 3, § II), 5-5-2022, election of 8-4-2022)

Sec. 10.103. Same—Functions.

The board of health shall hire the director of health, as specified below, and oversee his or her direction of the department of health with respect to all administrative functions of the metropolitan government pertaining to:

1. The physical and mental health of the people.
2. The investigation and control of communicable diseases.
3. The regulation of publicly and privately owned institutions for the purpose of sanitation and public health.
4. The enforcement of reasonable rules and regulations promulgated as herein provided.
5. The collection, compilation, tabulation, analyzing and reporting of statistics and data concerning births, still births, deaths and such vital statistics.
6. The performance or the functions previously assigned by law to the health officers or the health departments of the City of Nashville and Davidson County, or such as hereafter may be assigned to city or county health officers or city health departments or county health departments in Tennessee.
7. The inspection of all charitable institutions, all jails and all institutions of the metropolitan government where sick, mentally ill, destitute or other persons are confined. The board may cause any person convicted of violating any law or ordinance and who is confined, or who is on parole, to be examined as to the causes contributing to the delinquency and shall make and keep a record of such examinations. (Res. No. RS2022-1475, § 1(Amdt. 3, §§ III, IV), 5-5-2022, election of 8-4-2022

Sec. 10.104. Same—Duties.

In addition to the duties otherwise imposed by this Charter or by general law, it shall be the duty of the board of health to:

1. Determine and establish the policies to be followed in the exercise of its functions.
2. Establish within the department of health such divisions, branches, or subdivisions, and plan of organization as may be consistent with efficient administration, which organizational plan shall be submitted by the board to the council for approval by ordinance, and which organizational plan may be amended from time to time in like manner.
3. After public hearing adopt reasonable rules and regulations or amend rules and regulations previously adopted as necessary for the protection of the health of the people, which rules and regulations, among other things, shall set standards and procedures and requirements of conduct not less than as set out in regulations of the commissioner of public health of Tennessee. No such rule or regulation shall be contrary to any metropolitan ordinance.
4. Hear and act upon complaints of persons affected by decisions of the director of health or chief medical officer and to amend or set aside such decisions as are contrary to policies or regulations of the board.
5. Cause to be submitted, with the aid of the department of law, for submission to the council for its consideration, a comprehensive Health Code which shall embrace all matters with relation to public health to which the powers and duties of the board extend, and which shall have as its purpose the preservation and promotion of the health of the people of the metropolitan government.
6. Submit to the mayor, within six months after the beginning of each new term of office, a report upon the activities of the metropolitan board of health and a comprehensive program of public health and indigent medical care.
7. Conduct inquiries, make investigations and hold hearings for the purpose of investigating nuisances, preventing the creation of nuisances, taking other preventative steps to protect the health of the community and for other purposes herein set forth in connection with the powers, duties and authorities of the board. In conducting any such inquiry and mailing of any such investigation the board shall have and may exercise the same investigative powers as are vested by this Charter in other metropolitan agencies which are given investigative powers.
8. Contract with other governmental agencies, or with public or private institutions, subject to confirmation by the council by resolution for such services as will further the program and policies of the board.
9. Cause to be prepared by the director of health, subject to review and revision by the board, the proposed annual budget for the metropolitan board of health.
10. Cooperate with agencies of the United States and of the State of Tennessee in all matters of public health and sanitation and accept, receive and provide for the use of federal and state grants in aid, state aid and matching funds.
11. Cooperate with privately endowed or operated institutions, funds or foundations in all matters of public health and sanitation and receive and accept and provide for the use of grants from any such institutions, funds or foundations.
12. Exercise such other authority and perform such other duties as may be required by ordinance consistent with the general law and the provisions of this Charter. (Res. No. RS2022-1475, § 1(Amdt. 3, § V), 5-5-2022, election of 8-4-2022

Sec. 10.105. Director of health and chief medical officer—Appointment and qualifications.

The board shall appoint a director of health and may enter into an employment contract with such person for a period not exceeding five (5) years, and at a compensation to be fixed by the board. Such compensation so fixed shall be subject to approval by the council by resolution. The qualifications for the director of health shall be established by the board, subject to approval by the Metro Director of Human Resources. If the director of health is not a doctor of medicine or osteopathy, the director shall appoint a medical doctor or doctor of osteopathy, who may be a member of the department of health staff, to serve as the chief medical officer, which appointment is subject to board approval. Any powers, duties, responsibilities, or authorities vested in the director of health that require or imply that the director is a licensed physician shall be delegated to the chief medical officer. Any such delegation shall be made in writing and filed with the board of health. (Amended by referendum election of November 6, 2018, Amdt. 6; Res. No. RS2022-1475, § 1(Amdt. 3, § VI), 5-5-2022, election of 8-4-2022)

Sec. 10.106. Same—Powers and duties.

The director of health shall be the chief administrative officer of the board. He or she shall be responsible to the board for the administration and execution of its program and policies. Within the policies set forth by the board he or she shall have general management and control of any divisions of the department and such other administrative units as may be created by the board or by ordinance. With the approval of the board, pursuant to established personnel policies, and subject to the provisions of this article, he or she shall appoint and remove the heads of the divisions and other officers and employees of the board. He or she shall have such other powers and duties as may be authorized by general law, by this Charter or by ordinance. (Amended by referendum election of November 6, 2018, Amdt. 6; Res. No. RS2022-1475, § 1(Amdt. 3, § VII), 5-5-2022, election of 8-4-2022)

Sec. 10.107. Personnel rules and regulations of the board of health.

The metropolitan board of health, consistent with the standards of the merit system of the United States Public Health service, shall establish, adopt and make available for distribution, its rules, regulations and policy statement concerning its personnel policy, the manner and method of employing personnel, the requirements with reference to the qualifications of both professional and nonprofessional personnel, salaries, vacations, sick leave, job security, retirement policy, and other related terms and conditions of employment by the board.

The board shall constitute a civil service board with respect to employees of the board of health for the purpose of section 12.09 of this Charter and for the purpose of investigating and hearing charges against any professional or nonprofessional employee, and for the purpose of dismissing, suspending or otherwise disciplining any such employee, or reviewing any decision of the director of health affecting the employment status of such employee. In the discharge of its duties as a civil service board, the board shall act pursuant to its rules and regulations governing personnel policies promulgated as hereinabove stated, and shall have the same investigative powers as vested by this Charter in other agencies of the metropolitan government in which investigative power is vested. Any employee of the board dismissed or discharged pursuant to the action of the Board after hearing, may have such discharge or dismissal reviewed in the same manner as is provided in this Charter for the review of actions of the civil service commission under certain conditions. (Res. No. RS2022-1475, § 1(Amdt. 3, § VII), 5-5-2022, election of 8-4-2022

Sec. 10.108. Budget of metropolitan board of health.

The board shall submit to the mayor, through the director of finance, the budget for the metropolitan board of health. If the mayor shall make any change therefrom in the budget submitted by him or her to the council, it shall be his or her duty to inform the council with respect to such change and the original proposals of the board. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 10.109. Pension and retirement rights under former county plans.

All rights and benefits which any officer or employee of the county board of health of Davidson County or of the county health office has acquired under any pension plan established before the effective date of this Charter[1] are preserved and continued, as otherwise provided in this Charter.

1. April 1, 1963.

Sec. 10.110. Civil service medical examiner; civil service examinations.

The director of health shall designate a qualified professional member of his or her medical staff as civil service medical examiner to conduct physical examina-

tions for civil service personnel, including applicants for appointments, to conduct examinations for persons in retired status and applicants for retirement benefits, and to conduct periodical examinations for drivers of vehicular equipment of the metropolitan government. In addition, the civil service medical examiner shall conduct physical examinations when requested by any board or agency of the metropolitan government but solely for metropolitan government purposes; or as provided by ordinance. (Amended by referendum election of November 6, 2018, Amdt. 6; Res. No. RS2022-1475, § 1(Amdt. 3, § VII), 5-5-2022, election of 8-4-2022)

CHAPTER 2. PUBLIC HOSPITALS*

***Editor's note—**The Hospital Authority of the Metropolitan Government of Nashville and Davidson County was created by Substitute Resolution No. R99-1410, adopted March 2, 1999.

State law reference—Metropolitan Hospital Authority Act, T.C.A. § 7-57-501 et seq.

Sec. 10.201. Metropolitan board of hospitals—Created.

There shall be a metropolitan board of hospitals, which sometimes in this article is called the "board." The board shall administer and control hospitals for the Metropolitan Government of Nashville and Davidson County as herein provided.

Sec. 10.202. Same—Qualifications, term and selection of members.

The board shall be composed of seven (7) members. Three (3) members shall be doctors of medicine certi-

fied for practice as such by the state board of medical examiners and licensed by the state licensing board for the healing arts, and each of whom shall have had not less than five (5) years' experience in the active practice of his or her profession. One of said doctors of medicine shall also have had special training, practice and experience in the field of psychiatric medicine. One member shall be a registered nurse. The three remaining members of the board shall be chosen without reference to occupation or profession. Members of the board shall serve without compensation.

The members of the board shall be appointed by the mayor and confirmed by a majority of the whole membership of the council. They shall serve terms of five years each, provided that of the first seven members, two shall serve for five years, one for four years, two for three years, one for two years and one for one year. Any vacancy other than by expiration of term shall be filled for the unexpired term. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 10.203. Same—Functions.

The board of hospitals, through the director of hospitals, shall exercise all the administrative functions of the metropolitan government pertaining to the operation of all institutions owned, maintained or operated by the metropolitan government for the examination, treatment, convalescence or detention of the sick, injured or physically or mentally ill. Said board shall determine and establish the policies to be followed in the exercise of its function and it may receive, accept and provide for the use of funds from any governmental agency, by any public or private institution or by any individual.

Sec. 10.204. Director of hospitals—Appointment and qualifications.

The board of hospitals shall appoint a director of hospitals, herein sometimes called "director," and may enter into an employment contract with such person for a period not exceeding five (5) years, and at a compensation to be fixed by the board. The director shall be a person who has had at least five (5) years' experience in hospital administration or at least ten (10) years' experience in some other executive or major administrative position.

Sec. 10.205. Same—Powers and duties.

The director shall be the chief administrative officer of the board of hospitals. He or she shall be responsible to the board for the administration and execution of its program and policies. Within the policies set forth by the board, he or she shall have general management and control of all hospitals and institutions administered by the board. With the approval of the board, pursuant to established personnel policies, and subject to the provisions of this article, he or she shall appoint and remove the other officers and employees of the board. He or she shall have such other powers and duties as may be authorized by general law, by this Charter or by ordinance. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 10.206. Personnel rules and regulations of the board of hospitals.

The board of hospitals shall establish, adopt and make available for distribution its rules, regulations and policy statement concerning its personnel policy, the manner and method of employing personnel, the requirements with reference to the qualifications of both professional and nonprofessional personnel, salaries, vacations, sick leave, job security, retirement policy, and other related terms and conditions of employment by the board.

The board shall constitute a civil service board with respect to employees of said board for the purpose of section 12.09 of this Charter and for the purpose of investigating and hearing charges against any professional employee, and for the purpose of dismissing, suspending or otherwise disciplining any such employee, or reviewing any decision of the director affecting the employment status of such employee. In the discharge of its duties as a civil service board, the board shall act pursuant to its rules and regulations governing personnel policies promulgated as hereinabove stated, and shall have the same investigative powers as vested by this Charter in other agencies of the metropolitan government in which investigative power is vested. Any employee of the board dismissed or discharged pursuant to the action of the board after hearing may have such discharge or dismissal reviewed in the same manner as is provided by this Charter for review of actions of the civil service commission under certain conditions.

Sec. 10.207. Pension and retirement rights under former city or county plans.

All rights and benefits which any person has acquired as an employee of any hospital or institution owned, maintained or operated by the City of Nashville or the County of Davidson are preserved and continued as otherwise provided in this Charter.

ARTICLE 11. ADMINISTRATIVE BOARDS AND COMMISSIONS

CHAPTER 1. GENERAL PROVISIONS

Sec. 11.101. General provisions control except as specified.

The following general provisions shall apply to all administrative boards and commissions established by this article or other provisions of this Charter, except as specific provisions as to a particular board or commission otherwise provide.

Sec. 11.101.1. Holding over of member after expiration of term; appointment of successor, reappointment.

Any member of an administrative board or commission established under the provisions of this charter or by ordinance of the metropolitan county council and whose term has expired, may remain as a member of said board or commission no longer than sixty (60) days after the expiration of his or her term. Should the mayor or other appointing authority fail to appoint a successor or reappoint the member within sixty (60) days after expiration of his or her term, the position shall be deemed vacated and the power and authority to appoint shall be vested in the vice-mayor subject to confirmation by the council in the same manner as prescribed by this charter.

Should the mayor or other appointing authority appoint a successor or reappoint the member prior to or within sixty (60) days of the expiration of the term, and the metropolitan council fail[s] to act on the appointment within sixty (60) days of receipt of the letter of appointment from the mayor or other appointing authority, the appointment shall be conclusively presumed approved by the council.

Should an appointee be rejected by the council, the mayor or other appointing authority shall have sixty days to submit a new appointee to said council, provided the mayor or other appointing authority shall not resubmit the rejected appointee's name for consideration for the same position for a period of one (1) year. (Res. No. 74-869 § 1, 11-5-74; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 11.102. Qualifications of members.

Every member shall have been a resident of the area of the metropolitan government for not less than one (1) year prior to his or her appointment and shall continue to be so eligible so long as he or she shall serve. (Amended by Res. No. RS2006-1487 (Amdt. 5), referendum election of November 7, 2006, Amdt. 6; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 11.103. Quorum.

A majority of the membership shall constitute a quorum for the purpose of meeting and transacting business.

Sec. 11.104. Regular and special meetings.

Each board or commission shall hold regular meetings at least quarterly for the conduct of its business and may hold more frequent regular meetings as its by-laws may provide; and it may hold special meetings as may be deemed necessary, the same to be called or held as provided in its by-laws.

Sec. 11.105. Election of chairman, vice-chairman and secretary.

Each board or commission shall elect one of its members as chairman and another as vice-chairman, who shall serve for a period of one (1) year or until his or her successor shall have been chosen; and it may elect as its secretary one of its own members or it may appoint as secretary one of its employees. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 11.106. Members to hold no other metropolitan office or position.

No appointive member of any board or commission shall hold any other remunerative public office or position in the metropolitan government, except as otherwise specifically provided in this Charter.

Sec. 11.107. By-laws, rules and regulations to be filed with metropolitan clerk.

Each board or commission may make such by-laws, rules and regulations, not inconsistent with law, as it deems appropriate for the conduct of its business, copies of which shall be filed with the metropolitan clerk and with the secretary of the board or commission.

Sec. 11.108. Employment of personnel.

Except as otherwise provided in this Charter, each board or commission is authorized to employ such personnel as may be necessary to perform its functions and as may be within the limits of its budget appropriations.

Sec. 11.109. Removal of members.

Any appointive member of any board or commission established under the provisions of this Charter or by

ordinance may be removed from office by a three-fourths (¾'s) vote of the entire membership of the council. (Added by Amdt. 1 to referendum petition approved June 11, 1991)

CHAPTER 2. BOARD OF EQUALIZATION

Sec. 11.201. Established; members, appointment, qualifications and vacancies.

There is hereby established a metropolitan board of equalization, which shall consist of five (5) members appointed by the mayor for a term of two (2) years, and confirmed by a majority vote of the whole membership of the council. Said members shall be owners of taxable real property within the territorial limits of the metropolitan government and shall have been residents therein for a period of at least six (6) years prior to their appointment. At least two (2) members shall reside within and own taxable real property within the urban services district; and at least two (2) members shall reside without and own taxable real property without the urban services district. A member shall create a vacancy on the board if during his or her term of office he or she does not meet the requirements of appointment. All vacancies shall be filled for the unexpired term in the same manner as original appointments. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 11.202. Powers and duties.

Said board shall meet in a metropolitan public building on the second Monday in April of each year, and sit in regular session as necessity may require until the equalization has been completed, which shall not be later than June 1st. The board shall give notice in a principal newspaper of daily circulation published in the metropolitan area at least five (5) days prior to the initial meeting, stating the time, place, and hours of such meeting.

It shall be the duty of the metropolitan board of equalization carefully to examine, compare and equalize the assessments of property and merchants' ad valorem assessments within the territorial limits of the metropolitan government, and in so doing, together with the performance of all its other functions, be governed by the general laws regulating county or city boards of equalization, except as otherwise specified in this Charter.

Not later than fifteen (15) days after its adjournment, the board shall cause to be published in a principal daily newspaper published in the metropolitan area, a list of all taxpayers whose assessments were increased or decreased by said board, giving the names of taxpayers, location of the property, and the amount of increase or decrease as compared with the assessment of the metropolitan tax assessor.

Not later than fifteen (15) days after its adjournment, said board shall certify the assessments. The tax rolls shall then be turned over to the division of collections in the metropolitan department of finance at least fifteen (15) days prior to the date that taxes become due and payable.

Sec. 11.203. Right of complaint.

Any owner of taxable property shall have the right to make complaint before the metropolitan board of equalization. Upon such complaint, the board may hear any evidence or witnesses offered by the complainant or take other such steps as it may deem necessary to the investigation of the complaint, and pass upon the question justly and equitably. The board shall pass upon each complaint and either dismiss the complaint or grant all or part of the relief requested.

All decisions of the board of tax equalization shall be final and conclusive unless within the time permitted by law the taxpayer appeals from said decision to the state board of equalization and the action of the latter board shall be final, but always subject to such judicial review as may be permitted by law.

Sec. 11.204. Compensation of board members.

Members of the board shall receive compensation as provided by Tennessee Code Annotated, section 67-1-403, for members of county boards of equalization. (Res. No. 88-526, § 16, 10-4-88)

Sec. 11.205. General law applicable.

The metropolitan board of equalization shall be governed by general laws regulating county or city boards of equalization, except as specified in this Charter.

CHAPTER 3. ELECTRIC POWER BOARD

Sec. 11.301. Electric Power Board of Nashville continued as metropolitan agency.

The Electric Power Board of Nashville, created and established by chapter 246, Private Acts of 1947, and amendatory acts, the same being the Charter of the City of Nashville, shall continue to exist as the Electric Power Board of the Metropolitan Government of Nashville and Davidson County and to function as an agency of the metropolitan government, and shall have all the rights, duties, powers, obligations, privileges and responsibilities as are contained in the terms and provisions of said Private Acts or Municipal Charter. A copy

of the terms and provisions of said Private Acts or Municipal Charter, with modifications limited to those changes necessary and proper to constitute said electric power board an agency of the metropolitan government, is attached to this Charter and made a part hereof as Appendix Three hereto.

CHAPTER 4. NASHVILLE TRANSIT AUTHORITY

Sec. 11.401. Nashville Transit Authority continued as metropolitan agency.

The Nashville Transit Authority, created and established by chapter 487, Private Acts of 1953 and amendatory acts, the same being amendments to the Charter of the City of Nashville, shall continue to exist and to function as an agency of the metropolitan government and shall have all the rights, duties, powers, obligations, privileges and responsibilities as are contained in the terms and provisions of said Private Acts or Municipal Charter; provided, that members of said authority shall be appointed by the mayor and confirmed by a majority vote of the whole membership of the council. A copy of the terms and provisions of said Private Acts or Municipal Charter, with modifications limited to those changes necessary and proper to constitute said Nashville Transit Authority as an agency of the metropolitan government, is attached to this Charter and made part hereof as Appendix Four hereto.

CHAPTER 5. METROPOLITAN PLANNING COMMISSION

Sec. 11.501. Established.

There shall be a metropolitan planning commission, sometimes in this chapter called "the commission," which shall be the official planning agency for the Metropolitan Government of Nashville and Davidson County.

Sec. 11.502. Number, qualifications, appointment, terms of office and vacancies of members.

The commission shall consist of ten (10) members. The mayor shall serve as a member of the commission by virtue of his or her public office and one (1) member of the metropolitan county council shall be selected by that body from its membership to serve as a member of the commission for a term of two (2) years.* The member of the council selected to serve as a member of this commission shall be the chairman of the council committee on planning, provided such a committee is established. Eight (8) members shall be appointed by the mayor and shall be confirmed by a majority vote of the whole membership of the council.

The eight (8) members appointed by the mayor shall serve a term of four (4) years, respectively, or until a successor is duly appointed and qualified; except, of the members first appointed, two (2) shall serve for a term of one (1) year, two (2) for a term of two (2) years, two (2) for a term of three (3) years, and two (2) for a term of four (4) years.**

Any vacancy occurring during the unexpired term of any member shall be filled in the manner prescribed herein for the original selection of the members of this commission. (Amended by referendum election of November 6, 2018, Amdt. 6)

*** Editor's note—**Prior to September 1, 1996, this sentence read, "The mayor shall serve as a member of the commission by virtue of his or her public office and one (1) member of the metropolitan county council shall be selected by that body from its membership to serve as a member of this commission." This addition of language specifying the length of term was approved by referendum election held November 8, 1994.

**** Editor's note—**Prior to September 1, 1996, this sentence was followed by another sentence that read, "The terms of the mayor and the members of the council shall be coextensive with the terms of their respective public positions." Its deletion was approved by a referendum election held November 8, 1994.

Sec. 11.503. Organization; officers; meetings; quorum; business; records.

Immediately upon appointment and qualification, the metropolitan planning commission shall elect one of its appointive members as chairman and one as vice-chairman, each of whom shall serve for a period of one (1) year, respectively, or until his or her successor shall have been chosen for the ensuing term. The commission may choose such other officers as it deems necessary.

The metropolitan planning commission shall meet regularly at a public building at least once a month and its meetings shall be open to the public. Special meetings may be called by the chairman of the commission or by any three (3) members thereof. Six (6) members shall constitute a quorum for the transaction of any business, which shall be accomplished in accordance with bylaws adopted by the commission. A majority vote of the members present and constituting a quorum shall be necessary to decide any item of business requiring action by the commission. The commission shall maintain a record of its meetings and all actions taken and these records shall be open to the public. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 11.504. Powers, duties and responsibilities.

The metropolitan planning commission shall have all of the powers, duties and responsibilities which are now or may be hereafter granted to municipal planning commissions, regional planning commissions or metropolitan planning commissions by general state law, including specifically but not limited to such powers, duties and responsibilities with respect to general planning, zoning and subdivision regulations as are granted by the following chapters of title 13 (Public Planning and Housing) of the Tennessee Code Annotated: chapter 3, part 1 (Regional Planning Commissions); chapter 3, part 4 (Regional Planning Regulations); chapter 7, part 1 (County Zoning Regulations); chapter 4, part 1 (Municipal Planning Commissions); chapter 4, part 3 (Municipal Planning Regulations); and chapter 7, part 2 (Municipal Zoning Regulations); provided such powers, duties and responsibilities are not in conflict with the provisions of this article. To the extent that there is any conflict between the powers given a metropolitan planning commission and the powers given a municipal planning commission or a regional planning commission, the commission hereby created shall be deemed a metropolitan planning commission; and to the extent that there is any conflict between the powers given a municipal planning commission and the powers given a regional planning commission, the commission hereby created shall be deemed a municipal planning commission. In addition thereto, the commission shall have such powers, duties and responsibilities as are provided by ordinance.

In the performance of these powers, duties and responsibilities, the metropolitan planning commission shall have the authority, and where appropriate to the context shall be required, to:

(a) Within its budget appropriation and other funds at its disposal employ personnel and enter into contracts for such services as it may require.

(b) Enter into agreements and receive such grants and/or assistance as may be available from the federal or state governments for planning purposes; receive gifts for planning purposes.

(c) Require information which shall be furnished within a reasonable time from the other departments and agencies of the metropolitan government.

(d) Enter upon any land and make examinations and surveys and place and maintain necessary monuments and markers thereon.

(e) Make, amend and add to the master or general plan for the physical development of the entire metropolitan government area.

(f) Exercise control over platting or subdividing of land within the metropolitan government area.

(g) Draft for the council an official map of the area and recommend or disapprove proposed changes in such map.

(h) Make and adopt a zoning plan and recommend or disapprove proposed changes in such plan.

(i) Make, in cooperation with the metropolitan government housing authority, and adopt plans for the clearance and rebuilding of slum areas and for the improvement of blighted areas within the metropolitan government area.

(j) Make and adopt plans for the replanning, conservation, improvements and renewal of neighborhoods, planning units and communities within the metropolitan government area.

(k) Submit annually to the mayor, not less than sixty (60) days prior to the beginning of the budget year, a list of recommended capital improvements which in the opinion of the commission are necessary or desirable to be constructed or otherwise provided during the forthcoming six-year period. Such lists shall be arranged in order of preference with recommendations as to which projects shall be constructed in which years.

(l) Promote public interest in and understanding of planning and its organization and operation, the master or general plan and its constituent parts, and the implementation of planning, including zoning, subdivision regulation, urban renewal, the official map and capital improvements programming. (Res. No. 88-526, § 17, 10-4-88)

Sec. 11.505. Mandatory referrals to planning commission.

Whenever the commission shall have adopted the master or general plan of the metropolitan government area or any part thereof, then and thenceforth no street, park or other public way, ground, place or space, no public building or structure, or no public utility whether publicly or privately owned, shall be constructed or authorized in the area under the jurisdiction of the metropolitan government until and unless the location and extent thereof shall have been submitted to and approved by the planning commission; provided, that in case of disapproval, the commission shall communicate its reasons to the council and said council by a vote of a majority of its membership, shall have the power to overrule such disapproval and, upon such overruling, said council shall have the power to proceed. The widening, narrowing, relocation, vacation, change in the use, acceptance, acquisition, sale or lease of any street or public way, ground, place, property or structure shall be subject to similar submission and approval, and the

failure to approve may be similarly overruled. The failure of the commission to act within thirty (30) days from and after the date of official submission to it shall be deemed approval, unless a longer period be granted by the submitting body, board or official.

Sec. 11.506. Department of planning; executive director.

There shall be a department of planning, headed by an executive director. The planning commission shall appoint an executive director and may enter into an employment contract with such person for a period not exceeding five (5) years, and at a compensation to be fixed by the commission.

The executive director shall attend all meetings of the metropolitan planning commission, act as its secretary, keep minutes of its proceedings, direct the staff of the commission in its work, and shall have such other authority, duties and responsibilities as the commission may require and establish or as may be provided by ordinance.

The executive director shall have such executive authority, duties and responsibilities as are now or may be hereafter provided by general state law concerning municipal planning commissions, regional planning commissions or metropolitan planning commissions.

The department of planning shall be organized in such manner deemed appropriate by the planning commission for the performance of its work.

CHAPTER 6. METROPOLITAN BOARD OF FAIR COMMISSIONERS

Sec. 11.601. Created; number, qualifications, appointment and term of office of members.

There shall be a metropolitan board of fair commissioners, which shall consist of five (5) members to be appointed by the mayor and confirmed by a majority of the whole membership of the council. The members of the board shall serve for terms of five (5) years each, except that the members first appointed, one (1) shall serve for a term of one (1) year, one (1) for a term of two (2) years, one (1) for a term of three (3) years, one (1) for a term of four (4) years, and one (1) for a term of five (5) years. Any vacancy occurring during the term of a member shall be filled in the manner prescribed for the original appointment and shall be for the unexpired portion of the term.

Sec. 11.602. Functions and duties.

It shall be the duty of the metropolitan board of fair commissioners to:

(a) Exercise all the powers and perform all the duties heretofore or hereafter imposed on the Board of Fair Commissioners of Davidson County, as established by chapter 490 of the Acts of Tennessee for 1909 and chapter 515 of the Private Acts of 1923 and amendments thereto.

(b) Within the limitation of its budget appropriation and funds otherwise available, employ and fix the compensation of such personnel as may be necessary.

(c) Perform such other duties as may be imposed upon the board by ordinance.

(d) All activities being conducted on the premises of the Tennessee State Fairgrounds as of December 31, 2010, including, but not limited to, the Tennessee State Fair, Expo Center Events, Flea Markets, and Auto Racing, shall be continued on the same site. No demolition of the premises shall be allowed to occur without approval by ordinance receiving 27 votes by the Metropolitan Council or amendment to the Metropolitan Charter. (Amended by Amdt. 1 to referendum petition approved August 4, 2011)

CHAPTER 7. FARMERS MARKET BOARD

Sec. 11.701. Created; number, qualifications, appointment and term of office of members.

There shall be a farmers' market board, which shall consist of five (5) members to be appointed by the mayor and confirmed by a majority of the whole membership of the council. The members of the board shall hold no other public office or position, and shall serve for terms of five (5) years each, except that of the members first appointed, one (1) shall serve for a term of one (1) year, one (1) for a term of two (2) years, one (1) for a term of three (3) years, one (1) for a term of four (4) years, and one (1) for a term of five (5) years. Any vacancy occurring during the term of a member shall be filled in the manner prescribed for the original appointment and shall be for the unexpired portion of the term.

Sec. 11.702. Functions and duties.

It shall be the duty of the farmers' market board to:

(a) Exercise all the powers and perform all the duties heretofore or hereafter imposed on the "Davidson County Farmers Market Commission", as established by chapter 400 of the Private Acts of 1949 and any amendments thereto.

(b) Within the limitation of its budget appropriation and funds otherwise available, employ and fix the compensation of such personnel as may be necessary.

(c) Perform such other duties as may be imposed upon the board by ordinance.

CHAPTER 8. AGRICULTURAL EXTENSION BOARD

Sec. 11.801. Created; number, qualifications, appointment and term of office of members.

There shall be an agricultural extension board which shall consist of seven (7) members to be appointed by the mayor and confirmed by a majority of the whole membership of the council. The members of the board shall have been residents of the area of the general services district outside of the urban services district for not less than two (2) years prior to the appointment and shall continue such residence as a qualification for membership. At least two (2) members of the board shall be female homemakers. The members of the board shall serve for terms of three (3) years each, except that of the members first appointed, two (2) shall serve for a term of one (1) year, two (2) for a term of two (2) years, and three (3) for a term of three (3) years.

Editor's note—The composition of the board described above is superseded by Tenn. Code Ann. § 49-50-104.

Sec. 11.802. Functions and duties.

It shall be the duty of the agricultural extension board to:

(a) Exercise all the powers and perform all the duties of the county agricultural extension committee provided for by Tennessee Code Annotated, section 49-50-104, and otherwise to carry out the purpose of sections 49-50-101 to 49-50-106 of Tennessee Code Annotated by cooperating with the United States Department of Agriculture and the appropriate agencies of the State of Tennessee.

(b) Within the limitations of its budget appropriation and funds otherwise available, employ and fix the compensation of such personnel as may be necessary.

(c) Perform such other duties as may be imposed upon the board by ordinance. (Res. No. 88-526, §§ 18, 19, 10-4-88)

CHAPTER 9. METROPOLITAN TRAFFIC AND PARKING COMMISSION

Sec. 11.901. Created; qualifications, term and selection of members.

There shall be a metropolitan traffic and parking commission, sometimes in this chapter called "the commission." The commission shall consist of nine (9) members, who shall serve as such without compensation. One (1) member of the commission shall be the chief of police. One (1) member shall be a member of the council selected by the council for a term of two (2) years.* The remaining seven (7) members of the commission shall be appointed by the mayor and confirmed by a majority of the whole membership of the council. Said seven (7) members shall serve terms of five (5) years each, provided that the first members appointed shall serve terms of one (1), two (2), three (3), four (4) and five (5) years respectively. Any vacancy due to any cause shall be filled for the unexpired term in the same manner as the original appointment.

*** Editor's note—**Effective November 8, 1994, this sentence will read "One (1) member shall be a member of the council selected by the council for a term of two (2) years." This change was approved by referendum election held November 8, 1994.

Sec. 11.902. Secretary.

The secretary shall serve at the pleasure of the commission and shall be paid such compensation as shall be fixed by the commission within its budgeted appropriation.

Sec. 11.903. Chief traffic engineer.

The commission is authorized to select a chief traffic engineer, subject to the civil service provisions of article 12 of this Charter, who shall have such duties as may be prescribed by the commission. The chief traffic engineer shall be a graduate of a school of traffic engineering and shall have had at least five (5) years' experience in traffic administration.

Sec. 11.904. Function of commission as to traffic regulation.

For the purpose of making the roads, streets and other public ways safe for pedestrians, motorists and others, and for the purpose of facilitating the flow of traffic thereon, the commission is hereby authorized to adopt and publish traffic regulations, including the erection of proper signs necessarily and properly connected with or incident to the following:

(a) The location and time when parking shall be limited.

(b) Places where parking shall be prohibited entirely or only during certain hours.

(c) The establishment of stop sign controls for through streets or isolated intersections.

(d) The establishment of traffic signal controls.

(e) The direction in which traffic may use any street or portion of a street.

(f) Restrictions on the size of vehicles using certain streets.

(g) The establishment of speed zones upon metropolitan streets and roads based upon the findings of the commission. When such zones are properly signposted, the speed indicated on the signs shall be the legal speed limit.

Such traffic regulations adopted by the commission shall take effect five (5) days after they have been published in a daily newspaper of general circulation within the area of the metropolitan government and after a certified copy thereof has been filed with the metropolitan clerk and the chief of police. Such regulations, when so adopted, shall have the force and effect of an ordinance and shall be enforced by the metropolitan police. The metropolitan council shall provide by ordinance for the punishment of violators of such traffic regulations and shall fix proper and adequate fines and penalties.

Sec. 11.905. Commission's review of proposed ordinances.

Where a proposed ordinance affects traffic control or the use of streets by traffic and is not accompanied at introduction by a favorable recommendation of the traffic and parking commission, a copy thereof shall be promptly delivered by the metropolitan clerk to the commission and the same shall not be passed on second reading until the recommendation of said commission with respect to the proposal has been received, or thirty (30) days have elapsed without such recommendation. No ordinance which affects traffic control or the use of streets by traffic and which has been disapproved by the commission shall be finally passed or become effective unless it shall have been adopted by a two-thirds (2/3) majority of the whole membership of the metropolitan council and also then be approved by the metropolitan mayor with a three-fourths majority of the whole membership of the metropolitan council required to override a veto.

Sec. 11.906. Publication of traffic rules and regulations.

It shall be the duty of the commission to publish the traffic rules and regulations of the metropolitan government in convenient pamphlet form, and in the compiling of such rules and regulations the commission may call on the metropolitan department of law for such assistance as may be required.

Sec. 11.907. Management and control of parking meters, garages and other traffic facilities.

The commission shall have power to control and manage parking facilities in any metropolitan street or road, including the installation of parking meters or other necessary equipment in connection therewith. The commission shall prescribe and may revise a schedule of service charges in connection with the use of parking meters, a copy of which schedule shall be kept on file and subject to public inspection at the office of the commission and at the office of the metropolitan clerk.

The commission shall also have control and management of any public parking garage or other traffic facilities, and with the acquisition, construction and establishment of the same. The commission may enter into lease agreements with private operators to operate the parking facilities owned by the metropolitan government. The commission is authorized to collect rents, fees or other charges for such parking garage and other traffic facilities as it may operate and manage.

All moneys collected by the commission from parking meters, or any other service charges, shall be remitted by it to the metropolitan treasurer, who shall keep such moneys in a separate account earmarked for traffic and parking improvements.

Sec. 11.908. Powers of commission by private act and ordinance continued.

In addition to other powers herein granted, the commission shall have such powers as may have been granted by private act or ordinance to the traffic commission of the City of Nashville or to the parking board of said city, until such powers may be modified or changed by ordinance of the metropolitan council.

CHAPTER 10. METROPOLITAN BOARD OF PARKS AND RECREATION

Sec. 11.1001. Established; qualifications, term and selection of members.

There shall be a metropolitan board of parks and recreation, sometimes in this chapter called "the board." The board shall consist of seven (7) members, who shall serve without compensation. One of the members of the board shall be a member of the board of education, selected by said board of education for a term of one (1) year; and another member of the board shall be a member of the planning commission, selected by said planning commission for a term of one (1) year. Five (5) members of the board, who shall hold no other public office, shall be appointed by the mayor and confirmed

by a majority of the whole membership of the council. Said five (5) members shall serve terms of five (5) years each, provided that the first members appointed shall serve terms of one (1), two (2), three (3), four (4) and five (5) years, respectively. Any vacancy due to any cause, other than expiration of term, shall be filled for the unexpired term.

Sec. 11.1002. Powers and duties.

The board shall have the following powers and duties:

1. The board shall supervise, control and operate the park and recreation system of the metropolitan government.

2. It shall formulate the policies to be followed in the administration of the park and recreation system; and shall promulgate such rules and regulations as may be appropriate with respect to the administration of its policies.

3. It shall employ, subject to the civil service provisions of this Charter and within its budget appropriation and other available funds, a director of parks and recreation and such superintendents and other employees as it deems necessary.

4. It shall review, approve, reject or amend the annual budget request as compiled by the director.

5. It shall recommend to the council (a) the sale of any lands owned by the metropolitan government for park or recreation purposes and no longer needed for such purposes, (b) the acquisition by condemnation of any additional lands needed for park or recreation purposes, and (c) the acceptance of any gift of lands offered for park or recreation purposes and useful for such purposes. In the acquisition or disposition of land, the board shall cooperate closely with the planning commission, whose recommendations shall be sought and carefully considered by the board.

6. It shall have the authority to establish the fees and charges within the administration of the park and recreation department. It shall have sole authority of all matters pertaining to the operations of concessions.

Sec. 11.1003. Director of parks and recreation—Qualifications.

The director of parks and recreation shall have at least five (5) years' experience in park or recreation administration in a supervisory or executive capacity.

Sec. 11.1004. Same—Powers and duties.

The director shall be the chief administrative officer in charge of the management of public parks, playgrounds and other recreational areas and of a comprehensive recreation program for the area of the metropolitan government. He or she shall administer the policies of the board, recommend rules and regulations to the board for its consideration, and perform such other duties as may be assigned to him or her by the board or by ordinance. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 11.1005. Police protection for parks.

The board may employ custodial personnel who shall be designated as special police by the chief of police, without obligation to give a public officer's liability bond as provided for by section 8.205 of this Charter, and whose jurisdiction as special police shall be limited to the area of parks, playgrounds and other recreational areas. This section shall not be deemed to interfere with the right of the department of police to exercise police jurisdiction within said areas, nor with the duty to provide such police personnel as may be reasonably requested by the director of parks and recreation for the maintenance of law and order therein.

CHAPTER 11. METROPOLITAN SOCIAL SERVICES COMMISSION*

*** Editor's note—**By an amendment approved at an election held Aug. 4, 1983, §§ 11.1101, 11.1103 were amended by changing "welfare" to "social services." The editor has made a similar change in the chapter title.

Sec. 11.1101. Created; qualifications, term and selection of members.

There is hereby created and established a metropolitan social services commission, sometimes in this chapter called "the commission." The commission shall consist of seven (7) members who shall serve without compensation. The members of the commission shall be appointed by the mayor and confirmed by a majority vote of the whole membership of the council. The seven (7) members shall serve terms of five (5) years each; provided, that two members shall be initially appointed for one year, two for two years, one for three years, one for four years and one for five years, respectively. Thereafter, as their respective terms expire, members shall be chosen for five years. Any vacancy, other than by expiration of term, shall be filled for the unexpired term.

Sec. 11.1102. Powers and duties.

The commission shall have the following powers or duties:

1. To administer general assistance to residents of the metropolitan government area and emergency assistance to residents and nonresidents of such area under such terms and conditions as may be prescribed by the commission in its rules and regulations.

2. To make social investigations and reports to the council, the selective service and other governmental agencies.

3. To engage in study and research regarding the cause of financial dependency, and methods of better treating such dependency.

4. To administer public and private grants for welfare and relief purposes, and perform related welfare functions.

5. To perform such functions as may be assigned by law to county welfare agencies.

6. To supervise and/or operate welfare facilities.

7. To enter into cooperative agreements with the public welfare agencies of other local governments, the State of Tennessee and the United States Government and with voluntary welfare agencies for the administration of welfare programs.

8. To supervise the operation of the McKay Home, the Municipal Children's Home and the Knowles Homes for the Aged of the former City of Nashville. The Knowles Homes shall be operated in conjunction with the mayor in his or her capacity as trustee of the Knowles Estate. The supervision of the operation of any or all of the institutions enumerated in this subsection may be transferred by ordinance to the metropolitan board of hospitals.

9. To use in its work any funds appropriated by the council and in its performance thereof to receive donations from firms, individuals and private or governmental agencies.

10. To perform such other functions as may be assigned by ordinance or statute. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 11.1103. Director of social services.

There shall be a director of social services, who shall be appointed by the commission. The commission may enter into an employment contract with such person for a period not exceeding five (5) years at a compensation to be fixed by the commission.

The director shall administer the policies of the commission, recommend rules and regulations to the commission for its consideration, and perform such other duties as may be assigned to the director by the commission or by ordinance.

CHAPTER 12. PUBLIC LIBRARY

Sec. 11.1201. Public library provided for.

The metropolitan government shall provide for the maintenance and operation of the Nashville Public Library.

Sec. 11.1202. Public library board—Term and selection of members.

There shall be a public library board, which shall consist of seven (7) members, to be appointed by the mayor and confirmed by a majority of the whole membership of the council. Members of the board shall serve for terms of seven (7) years each; except, that the members first appointed shall be so appointed and designated that the term of one of them shall expire each year in each of the seven ensuing years. Any vacancy occurring during a term shall be filled for the unexpired term. Members of the board shall serve without compensation.

Sec. 11.1203. Same—Powers and duties.

The public library board shall have direct charge of the Nashville Public Library system and shall have the power and duty to administer and control all libraries under its jurisdiction. The board shall have exclusive authority to make expenditures out of the money appropriated for the public library as well as the money collected from fines or received from other sources. Said board is authorized to accept gifts, bequests and contributions from public sources and private persons and corporations.

Sec. 11.1204. Chief librarian.

For the proper administration of the public library, the board shall employ a chief librarian and fix his or her compensation. He or she shall be a person with experience in an executive or major administrative position in public library operations. The board may enter into an employment contract with such person for a period not exceeding five (5) years and for a compensation determined therein. The board is authorized to assign to the chief librarian such duties and responsibilities as are customary or usual, including immediate control and management of the public library under the regulations prescribed by the board. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 11.1205. Public library budget.

The board shall submit to the mayor, through the director of finance, the budget for the public library and it shall be the duty of the council to provide an amount which in its discretion is sufficient for the maintenance and operation of the public library system.

CHAPTER 13. COMMUNITY OVERSIGHT BOARD

Sec. 11.1301. Created; qualifications, terms and selection of members.

There is hereby created the Metropolitan Government of Nashville and Davidson County Community

Oversight Board, sometimes in this chapter called "the Board," to be operational no later than January 31, 2019. The Board shall consist of eleven (11) Members, who are residents of Davidson County and shall serve three (3) year terms without compensation. The Board members must have a demonstrated knowledge of issues pertaining to civil rights and equity, and must have experience with criminal justice and policing practices. Board members are to receive related orientation and training, including the completion of Metropolitan Nashville's Citizen Police Academy or an equivalent training, and ongoing civil rights and equity training from entities concerned with police oversight. Ineligible persons for the Board and the supporting staff include current employees of any law enforcement agency; anyone who has served in a law enforcement capacity in the past five year; any elected official; and the spouses of the foregoing persons. Seven (7) of the Board members shall be persons who are nominated by community organizations or private petition signed by fifty (50) Davidson County residents and approved by majority vote of the Council. At least four (4) of the seven (7) members must reside in economically distressed communities. Two (2) of the members shall be persons who are nominated by Council Representatives, and then approved by majority vote of the Council. Two (2) of the members shall be persons who are nominated by the Mayor, and then approved by majority vote of the Council. Except for the initial appointees who shall serve at least a one-year (1) term, the successive Board members shall serve staggered three-year terms. The initial Board members shall develop rules for determining staggered terms for the succeeding appointees to the Board. (Added by referendum petition approved November 6, 2018, Amdt. 1)

Sec. 11.1302. Powers and duties.

The Board shall have the following powers and duties, and shall by majority approval adopt procedures for their implementation:

1. The Board shall have the power to investigate allegations that MNPD officers have committed misconduct against members of the public, as well as issue policy advisory and resolution reports assessing allegations of misconduct by MNPD, recommendations to agencies involved in public safety and the administration of justice, and have the option of establishing a monitoring program that provides an ongoing review or audit of the complaint process administered by the MNPD Office of Professional Accountability ("OPA") or equivalent internal affairs program in MNPD.

2. Where the Board finds a basis to believe that an officer has committed misconduct in violation of MNPD policy, the Board may refer such matter to the MNPD OPA and recommend that discipline be given within the parameters of civil service rules and regulations of article 12 of this Charter. MNPD shall be required to respond to the Board's disciplinary recommendations in writing.

3. The Board has the option of forwarding resolution reports that produce factual findings of criminal misconduct and civil rights violations to the District Attorney, the Grand Jury, or the United States Attorney.

4. The Board shall have all powers, including the power to compel, afforded to other metropolitan government agencies, Boards, and entities identified in Section 18.10 of the metropolitan government Charter.

5. The Board shall submit to the mayor, through the director of finance, an annual budget request of no less than $1,500,000.00 beginning and after the fiscal year 2019-2020, and it shall be the duty of the council to determine if this amount is sufficient for the operation of the Board and staff. (Added by referendum petition approved November 6, 2018, Amdt. 1)

Sec. 11.1303. Support staff and personnel.

No later than March 29, 2019 and through a special appropriation lasting through the end of the fiscal year, the Board shall be fully operational and staffed by sufficient numbers of personnel in order to promptly, competently, and thoroughly carry out its duties. The salaries and benefits of the following support staff and personnel shall be as fixed in the pay plan adopted pursuant to article 12 of this Charter: Executive Director, Assistant Executive Director, a minimum of three investigators to investigate alleged misconduct and factual matters relevant to the development of policy advisory and resolution reports, a minimum of two research analysts, a minimum of one community engagement liaison to receive and solicit input from community members, and a legal resource advisor. (Added by referendum petition approved November 6, 2018, Amdt. 1)

ARTICLE 12. CIVIL SERVICE[2]

2. Sheriff may appoint such deputies and other employees as may be necessary to carry out his or her duties, but in selecting employees to operate the metropolitan workhouse, is bound by the civil service provisions of the Metropolitan Charter, except for the superintendent or warden of such workhouse, who shall be appointed by the sheriff to serve at his or her will. Metropolitan Government v. Poe, 215 Tenn. 53, 383 S.W. 2d 265 (1964).

Sec. 12.01. Personnel policy and administration established.

For the effective conduct of the public business, there is hereby established a personnel policy and administra-

tion under which entry into the service shall be on the basis of open competition and service shall be on the basis of merit, efficiency and fitness. The civil service commission, sometimes called commission, shall be responsible for developing and fostering the effectiveness of this personnel policy in the metropolitan government.

Sec. 12.02. Civil service commission—Number, qualifications, selection and term of members.

The commission shall consist of five (5) members who shall have an interest in civil service and merit principles in the public service, who shall otherwise have the qualifications prescribed in section 11.102 of this Charter and who shall serve without compensation. No member of the commission shall hold any public office or position nor be a member of any local, state or national political committee.

The members of the commission shall be appointed by the mayor and shall be confirmed by a two-thirds vote of the whole membership of the council. One member of the commission shall be initially appointed for a period of one (1) year; one for two (2) years; one for three (3) years; one for four (4) years; and one for five (5) years. Thereafter, appointments shall be for terms of five (5) years, except that when a vacancy occurs prior to the end of a term, the member appointed to fill the same shall hold under such appointment only for the unexpired term. One member of the commission shall be a person actively engaged in the practice of law, one shall be a representative of business or industry, one shall be a representative of labor, and the remaining members shall be chosen without reference to profession or occupation.

Sec. 12.03. Same—Duties.

In addition to other duties herein specified, it shall be the duty of the civil service commission to:

(a) Advise with and supervise the director of personnel in all continuing improvements of personnel standards and administration in the metropolitan government.

(b) Make any investigation or study it may deem desirable concerning the organization and administration of personnel in the metropolitan government.

(c) Review, approve, revise or modify any action taken by the director of personnel.

(d) Make annual reports and such special reports as it may consider desirable to the mayor and council.

(e) Upon request of an affected employee, review suspensions, demotions or separation from service of any employee in classified service, and to render decisions thereon, subject to its rules.

Sec. 12.04. Director of personnel.

There shall be a director of personnel, who shall be appointed by the commission, subject to the civil service provisions of this Charter, and who shall have had training and experience in personnel administration. The salary of the director of personnel shall be prescribed in the pay plan provisions of this article, with a salary of twelve thousand ($12,000) dollars per annum, payable semimonthly. In addition to other duties herein specified, it shall be the duty of the director of personnel to:

(a) Administer the civil service program of the metropolitan government under the supervision of the civil service commission and subject to its rules.

(b) Attend all meetings of the civil service commission, to act as its secretary, and keep minutes of its proceedings.

(c) Direct and supervise the department of personnel.

(d) Appoint, with the approval of the commission and subject to the civil service provisions, such employees of the department of personnel as may be necessary.

(e) Establish and maintain a roster of all employees of all departments, commissions and agencies of the metropolitan government which shall reflect such data and information as may be deemed necessary regarding personnel organization and administration.

(f) Prepare and maintain an up-to-date record of the authority, duties and responsibilities of each position in the classified service.

(g) Develop, in cooperation with the appointing authorities of the metropolitan government, training and educational programs for employees in the metropolitan service.

(h) Periodically review the operation and effect of personnel provisions of this Charter, the rules promulgated by the commission, the classification plan and the pay plan, and to report his or her findings and recommendations to the commission.

In making appropriations for the civil service commission, the council shall provide sufficient funds to maintain the up-to-date record required for job classification. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 12.05. Selection and dismissal of metropolitan employees; limitation on number of positions held.

The civil service commission shall provide all candidates for appointment to the classified service. In accordance with rules and procedures which the commission believes will best serve the personnel policy, candidates shall be rated by competitive examination as "Outstanding," "Well Qualified," "Qualified," and "Unqualified." The duration of each list shall be prescribed by the commission, but none shall be less than six (6) months or more than three (3) years.

The appointing authority shall select his or her employees from those candidates available in the highest qualified rating. The employee appointed will be a probationary employee for the training period. After the minimum time prescribed by the commission for the position, but before the end of the probationary period not to exceed six (6) months, the appointing authority may terminate an appointee whose training period performance indicates that he or she will not meet the job requirements. After the probationary period, each employee shall become a member of the classified service.

No employee in the metropolitan service may hold more than one position or employment in the metropolitan service except as follows:

(a) School personnel between school years may be employed to work in other departments;

(b) Certificated school personnel may be employed on a part-time basis to teach community education classes; and

(c) Non-elected employees in the metropolitan service may be employed by the metropolitan board of public education on a part-time basis to lead, teach, or coach students in extra-curricular activities and/or to serve as substitute teachers. The civil service commission shall adopt and promulgate rules and regulations necessary for the implementation of this section.

(d) Employees may be employed to work as part-time poll workers for the election commission.

No employee in the classified service may be terminated, or suspended from the service, or demoted in pay grade, except for cause and after a hearing before the department head or other appointing authority, with prior reasonable notice, in writing, of the proposed action and the reasons therefor, provided, that when an employee is suspended for cause such suspension shall not exceed an accumulation of thirty (30) working days during a twelve (12) month period. Any employee terminated from the classified service or suspended or demoted in pay grade, by his or her simple written request to the commission, shall have the action reviewed by the commission. If the commission does not approve the action, it may modify or reverse it, and provide whatever recompense is indicated, which shall not exceed net loss of earnings. In a review by the commission of any disciplinary action, the disciplinary authority shall bear the burden of proof of just cause for discipline. (Res. No. RS2012-277, § 1(Amdt. 1), 9-18-2012, election of 11-6-2012; Amdt. 1 to Res. No. RS2010-1119, §§ 1, 2; Res. No. RS2010-1119, § 1, 11-2-2010; Res. No. 72-380, § 1, 11-7-72; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 12.06. Adoption of rules by civil service commission.

The director of personnel shall recommend to the commission such rules as he or she considers necessary to carry out the provisions of this article. Thereupon the commission shall fix and hold a public hearing with respect to the rules or their amendments so recommended and within sixty (60) days after such recommendation the commission shall act on such rules or amendments. The commission may approve or reject such recommended rules or amendments in whole or in part, or it may modify and approve them as so modified. Thereafter, the commission may amend or add to the rules on recommendation of the director or on its own initiative, but only after a public hearing on proposed amendments.

The commission shall review said rules periodically for the purpose of revision and in a manner appropriate to sound practices of personnel organization and administration. It shall arrange for the printing of said rules and for their distribution. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 12.07. Substantive content of rules of the commission.

The rules of the commission shall provide for the efficient organization and administration of employment and regulatory practices by the metropolitan government calculated to preserve the rights of employees and enhance public confidence in a merit system and shall include but not be limited to the following:

(a) Administration of the classification plan.

(b) Administration of the pay plan.

(c) The method of holding competitive examinations for positions in the classified service. In connection with such examinations the rules shall provide for open competitive examinations to be conducted by the director of personnel for the purpose of filling vacancies or making original appointments in the classified service; public announcement thereof after giving reasonable

notice; the granting of preferences to former members of the armed forces of the United States; the appointment of examining boards; and the establishment of minimum standards for applicants for such examinations.

(d) The establishment, maintenance, consolidation and cancellation of eligibility and promotion lists, and the manner in which appointments shall be made. Such rules shall provide a method for establishing reemployment lists containing names of persons separated from positions for reasons other than cause or delinquency on their part; and the time such lists shall remain in effect; for the ranking of eligibles in accordance with ratings earned in tests; for consideration of records of performance, seniority and conduct; for the length of time that promotion and employment lists shall remain in force; and for the method of certifying vacancies and making appointments generally and certifying eligibility therefor; for working test periods; for a method of temporary appointments in the absence of eligible lists, and the limitations thereon, and for emergency appointments.

(e) The application of service ratings, hours of work, attendance regulations, holidays, and leaves of absence.

(f) The manner in which lay-offs shall be effected giving due consideration to the seniority rights of employees.

(g) A method of transferring employees within a department, and from one department to another, provided nothing in such rules shall authorize the transfer of an employee into the police and fire departments of the metropolitan government from other departments unless such employees meet all the entrance requirements of these two departments as established by this Charter and by the rules of the commission.

(h) The disciplinary action within the classified service. Rules with respect to such action shall provide that when an employee requests a review of disciplinary action taken against him or her, as provided in section 12.05 above, such employee shall be furnished a copy of the basis of his or her discipline not less than fifteen days prior to such hearing, and said rules may provide for the amendment of grounds for discipline upon reasonable notice to the employee.

It shall be mandatory that the rules provide that the judgment and findings of the commission on all questions of fact, in the hearing of charges preferred against any classified employee under the provisions of this article, shall be final and shall be subject to review only for illegality or want of jurisdiction, excepting only cases where classified employees have been dismissed from the service by judgment of the commission, in which case such dismissed employee may prepare and file the record of the proceedings, including a transcript certified by the chairman of said commission, in the circuit and chancery courts of Davidson County, where the case may be heard de novo solely upon the record so certified; provided, that such transcript must be presented to and signed by the chairman of the commission within thirty (30) days after the commission shall have announced its findings, and provided that an extension of time may be granted for this purpose not to exceed thirty (30) days. Any person, other than a member of the commission, may file and prefer charges against any classified employee.

Rules of the commission when adopted as provided herein shall have the full force and effect of law.

Within one (1) year after adoption of the rules or any amendments thereto, any employee who deems himself or herself adversely affected thereby, or any citizen, shall, upon written request therefor, be afforded a public hearing before the commission. The commission, after a hearing, may reaffirm its approval of the rules or make such modifications as it shall deem necessary. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 12.08. Positions in classified service and in unclassified service.[3]

All positions in the metropolitan government shall be in the classified service except the following, which are hereby declared to be in the unclassified service.

(a) All officers of the metropolitan government and of the county elected by popular vote, and officers appointed to fill vacancies in any such elective position.

(b) The director of finance, private secretaries of directors as designated herein, the administrative assistants to the mayor, the metropolitan attorney, the deputy metropolitan attorney, the assistant metropolitan attorneys, and employees in the office of the mayor, exclusive of any such employees who may have otherwise attained a civil service status prior to the effective date of this Charter.

(c) Members of boards or commissions in the metropolitan government, except as otherwise provided in this Charter.

(d) The executive director or secretary for every board or commission of the metropolitan government, and such principal professional personnel or professional positions on the staff not formerly under civil service of said board or commission as he or she may designate subject to the approval of said board or commission.

(e) All professional personnel employed by the board of health and the board of hospitals.

(f) All teachers employed by the board of education.

(g) Employees of the Nashville Electric Power Board; provided, however, that those employees of the Nashville Electric Power Board who are in active service on the effective date of this Act[4] shall continue to hold all civil service rights and benefits heretofore provided for pursuant to the provisions of chapter 246 of the Private Acts of the General Assembly of Tennessee for 1947 and any amendments thereto.

(h) Employees in the office of the county or probate judge of Davidson County.

(i) Officers heretofore elected by the Quarterly County Court of Davidson County.

(j) Deputies of the following officers: Circuit court clerk, criminal court clerk, chancery clerk and master, county court clerk, trustee, tax assessor, register; and court officers, stenographers and clerks appointed by judges; whether or not compensated by the metropolitan government.

(k) Employees of the board of fair commissioners, of the farmers' market board and of the agricultural extension board.

(l) Those persons employed on special projects paid from any bond funds of the former City of Nashville or former County of Davidson or future bond funds of the metropolitan government; seasonal employees, who are herein defined as those whose service does not exceed four (4) months in any twelve (12) months period; and emergency employees as defined from time to time by rules and regulations of the commission.

(m) Those persons whose professional services are needed from time to time on particular matters. (Amended by referendum election of November 6, 2018, Amdt. 6)

3. Sheriff and superintendent of metropolitan workhouse, although not listed by this section as being in the unclassified service, are not subject to the classified service of the metropolitan government. Metropolitan Government v. Poe, 215 Tenn. 53, 383 S.W. 2d 265 (1964).

4. April 1, 1963.

Sec. 12.09. Civil service commissions for board of health, board of hospitals and board of education.

With respect to nonprofessional personnel employed by the board of health and the board of hospitals, and with respect to nonteaching employees of the board of education, the employing board shall constitute a civil service commission for its respective employees and in so acting said boards shall, to the extent deemed practicable, conform to the provisions of this article as to the adoption of rules, the discipline or dismissal of employees, the classification of positions and the adoption of a pay plan.

Sec. 12.10. Adoption of classification and general pay plan.

The commission shall direct the director of personnel to make or cause to be made:

(a) A job description of every position in the classified service.

(b) A classification plan which will assign each position by title to one class.

(c) Assignment of each classification to grades equitably related to each other on the basis of function, responsibility and nonwage benefits, with the percentage between the high and low salary range for each grade. Upon the approval of the commission, any such determinations shall have the effect of law.

The director of personnel shall, after the approval of the commission, recommend to the director of finance, the desirable salary ranges for each grade. The director of finance shall approve or modify the ranges for each grade, and forward the same with a statement of full budgetary implications, to the mayor for his or her approval. The mayor shall approve the plan or approve it subject to his or her modifications, but neither the director of finance nor the mayor may alter or destroy the relationships between the grades. Thereupon, the mayor shall submit the same to the council with recommendation that it be adopted.

The council shall (1) adopt the general pay plan, or (2) adopt the same as amended but without modifying the plan except by uniform modification of all grades, or (3) reject the same. Adoption or rejection shall be by resolution not requiring the approval of the mayor. When a general pay plan is rejected by the council, it shall be returned to the commission which shall thereupon formulate another general pay plan and transmit the same to the mayor for handling under the procedures above set forth.

"Upon approval of the plan by the mayor and council, this shall be the pay plan under which all covered employees must be paid, with the exception of the department of metropolitan police and the department of fire, the employees of which shall be paid in accordance with the provisions of section 12.13 below."

Whenever it may be deemed desirable to create any new position in the metropolitan government, the director or head of the department affected shall present a request in writing to the mayor and the civil service commission for investigation. Not later than fifteen days after the same is filed, if the mayor thinks the creation of the position in the public interest, he or she shall transmit the ordinance for this purpose, together with the civil service commission's written job description and assignment of the proposed position to the appropri-

ate class in the classification plan. Where a proposed ordinance creates a new position and is not accompanied by such recommendation, copy thereof shall be promptly furnished by the metropolitan clerk to the mayor and to the civil service commission, and the same shall not be passed on second reading until their recommendations have been received or fifteen (15) days have elapsed without such recommendations.

Any position, job or employment hereafter created in the manner above provided, shall be in the classified service as herein defined and subject to all the rules of the civil service commission, except as the ordinance creating the same or this Charter may otherwise provide.

The director of personnel shall maintain adequate records for all employees; he or she shall require, at least once a year, performance reviews on each employee on such form or forms as the director provides. The director of personnel shall certify that each payroll in question complies with the personnel policy established by this article. No payroll may be paid without this certification. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—An amendment to § 12.10 was approved at an election held Nov. 4, 1986.

Sec. 12.11. Offenses against civil service and disabilities of civil service employees.

No person shall attempt to use any political endorsement in connection with any appointment in the classified service. No person shall use or promise to use, directly or indirectly, any official authority or influence, whether possessed or anticipated, to secure or attempt to secure for any person, an appointment or advantage in appointment to a position in the classified service, or an increase in pay or other advantage in employment in any such position, for the purpose of influencing the vote or political action of any person, or for a consideration.

No employee in the classified service, and no member of the commission, shall directly or indirectly, pay or promise to pay any assessment, subscription, or contribution for any political organization or purposes, or solicit or take part in soliciting any such assessment, subscription or contribution. No person shall solicit any such assessment, subscription or contribution of any employee in the classified service.

No employee in the classified service shall be a member of any national, state or local committee of a political party, or an officer or member of a committee of a political party, or an officer or member of a committee of a partisan political club, or shall take any part in the management of the affairs of any political party, or in any political campaign, except to exercise his or her right as a citizen privately to express his or her opinions and cast his or her vote. Any classified employee who violates any of the foregoing provisions of this section shall forfeit his or her office or position.*

No person elected to public office within the metropolitan government shall, during the term for which he or she was elected, be appointed to any other position in the metropolitan government, except as otherwise specifically provided in this Charter.

No person shall, directly or indirectly, give, render, pay, offer, solicit, or accept any money, service, or other valuable consideration, for or on account of any appointment, proposed appointment, promotion, or proposed promotion to, or any advantages in, a position in the classified service.

No employee of the department of personnel and no member of the commission, or other person, shall defeat, deceive, or obstruct any person in his or her right to examination, eligibility, certification, or appointment hereunder, or furnish to any person any special or secret information for the purposes of affecting the rights or prospects of any person with respect to employment in the classified service.

Any officer or employee of the metropolitan government who violates the provisions of this section shall forfeit his or her office or position. (Amended by referendum election of November 6, 2018, Amdt. 6)

*** Editor's note—**Tennessee Code Annotated §7-51-1501 provides as follows: "Notwithstanding the provisions of any county, municipal, metropolitan, or other local governmental charter to the contrary, and notwithstanding the provisions of any resolution or ordinance adopted by any such county, municipality or other local governmental unit to the contrary, every employee of every such local governmental unit shall enjoy the same rights of other citizens of Tennessee to be a candidate for any state or local political office, the right to participate in political activities by supporting or opposing political parties, political candidates, and petitions to governmental entities; provided, further, the city, county, municipal, metropolitan or other local government is not required to pay the employee's salary for work not performed for the governmental entity; and provided, further, that unless otherwise authorized by law or local ordinance, an employee of a municipal government or of a metropolitan government shall not be qualified to run for elected office in the local governing body of such local governmental unit in which the employee is employed."

Sec. 12.12. Continuance of existing civil service rights of county and city employees.

Nothing in this article or charter shall impair or diminish the rights and privileges of existing employees of the County of Davidson or the City of Nashville under civil service; and such rights and privileges shall continue without impairment as obligations of the metropolitan government.

Sec. 12.13. Pay plan for employees of metropolitan police department and fire department.

Employees of the metropolitan police department and fire department shall be classified and paid in accordance with a separate and distinct pay plan. The procedures set forth in section 12.10, applicable to the general pay plan, shall be followed in establishing the pay plan for employees of the metropolitan police and fire departments; provided, however, that no employee or position shall suffer a reduction in pay or other benefits in the establishment of the separate pay plan for the police and fire departments, and provided further that these procedures will be replaced in the event this Charter shall be amended to establish collective bargaining procedures between employees of the police and fire departments and the metropolitan government.

Editor's note—Section 12.13 was added at the election held Nov. 4, 1986.

ARTICLE 13. SYSTEM OF EMPLOYEE BENEFIT PLANS

Sec. 13.01. Adoption.

A system of employee benefit plans which include disability and retirement benefits and which may include medical insurance benefits and life insurance benefits, shall be adopted for officers and employees of the metropolitan government for whom such plans are not provided by other sections of this Charter.

Sec. 13.02. Metropolitan employee benefit board—Created.

A metropolitan employee benefit board (sometimes in this article called "board") shall be created to administer, manage and coordinate the employee benefit plans of the metropolitan government as well as the retirement plans listed in section 13.09 (a)—(c) of this article.

Sec. 13.03. Same—Composition and selection of board; terms and qualifications of members.

The board shall be composed of ten (10) members, as follows: The director of finance and the director of personnel shall be members by virtue of their official positions. Three (3) members shall be appointed by the mayor, subject to confirmation by the council, and shall possess an interest in benefit and retirement programs, and one (1) shall have at least ten (10) years business experience, and all three (3) shall be on the investment committee. They shall serve for terms of three (3) years each, except that the members first appointed shall serve for terms of one (1) year and two (2) years respectively. Five (5) members shall be selected by their own number, one (1) from the police department, one (1) from the fire department, two (2) from all other departments of metropolitan government and one (1) from among the retired employees. The employee members shall serve for terms of three (3) years each, except that the members first selected by the employee groups shall serve for terms of one (1) year, two (2) years, and three (3) years respectively. All members of the board, including the chairman, shall be entitled to vote on all issues.

The director of personnel, with the approval of the metropolitan civil service commission, shall announce a plan for the conduct of an election to be held by the employee members of the board. The election shall be conducted under the supervision of the director of personnel, who shall immediately report to the commission the name of the employee receiving the required votes in such election, which report shall be spread upon the minutes of the commission. Upon such certification by the director of personnel to the commission, the successful candidate shall thereupon enter his or her duties as a member of the board.

The members appointed by the mayor, and confirmed by the council, shall hold no public office and shall not be a member of any local, state of national committee. All vacancies on the board shall be filled for the unexpired portions of any term in the manner above prescribed for their respective positions.

In the performance of its staff functions, the board, its investments committee and the study and formulating committee hereinafter created may utilize the office and clerical staff of the director of personnel or there may be employed by the board a secretary who shall have had training and experience in pension and retirement administration. (Res. No. 72-380, 10-3-72; Substitute Res. No. 78-1051, 9-19-78; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 13.04. Investments committee.

The director of finance and the two members of the employee benefit board selected by the mayor shall be and constitute the investments committee of the board. Said committee shall regulate and determine all matters dealing with investment of funds committed to the board and shall have full and complete control over all investments, subject to the provisions of this Charter and of other applicable law. No other member of the board shall have authority to vote or participate in decisions dealing with investment of funds committed to the board. The investments committee shall be and constitute an administrative board of commission for the purpose of regulations and duties prescribed by chapter 1 of

article 11 of this Charter. All actions taken by the investments committee shall have the approval of at least two members thereof.

Full minutes shall be kept of all actions of the investments committee, which shall be public records as defined by state law. Said investments committee shall at least annually make a detailed accounting of its investments, income and expenditures, and file the same with the board, the mayor and the council. This report shall be a public record, and shall show the time, place, company, firm, person or individual in each instance dealt with, the nature and type of transaction involved, the nature and type of investment; the nature and type of income derived from such investment and any other information reasonably required to determine the exact financial status of all transactions. Any affected employee, upon request and at his or her expense, shall be furnished copies of such report or of designated portions thereof.

Said investments committee shall manage, invest and distribute the fund or funds maintained in connection with the system of employee benefits plans for officers and employees of the metropolitan government, as well as the retirement plans listed in section 13.09 (a)—(c) of this article; provided, however, that no investment shall be made except in securities and properties which at the time of making the investment are permitted by statute for the investment of funds by fiduciaries in the State of Tennessee. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 13.05. Duties of metropolitan employee benefit board.

In addition to the other duties imposed by this Charter or by general law, it shall be the duty of the board to:

(a) Hold regular monthly meetings, which shall be open to the public.

(b) Coordinate and communicate to officers and employees of the metropolitan government, the system of employee benefit plans for officers and employees of the metropolitan government, and to manage and administer such system of employee benefit plans as well as the retirement plans listed in section 13.09 (a)—(c) of this article.

(c) Make such expenditures as may be necessary in fulfilling its duties, within the limit of its budget appropriation.

(d) Construe any employee benefit plans adopted by the metropolitan government as well as any retirement plan listed in section 13.09 (a)—(c) of this article, and to determine all questions that may arise thereunder, including questions relating to the eligibility of any person employed by the metropolitan government to become a member of any such employee benefit plan and the amount of benefit to which such person, or any member of a retirement plan listed in section 13.09 (a)—(c) of this article may become entitled thereunder.

(e) Adopt such rules, regulations and procedures as it may deem necessary in fulfilling its duties.

(f) Advise the mayor and the council of the anticipated financial requirements of each employee benefit plan adopted by the metropolitan government, as well as the retirement plans listed in Section 13.09 (a)—(c) of this article so that such financial requirements shall be included in the budget and tax levy ordinances for the ensuing fiscal year.

Sec. 13.06. Study and formulating committee; preparation, consideration and adoption of plan for employee benefits; subsequent committees provided for.

There shall be a study and formulating committee consisting of five (5) persons appointed by the mayor and approved by the council. This committee shall make a study and formulate a plan for employee benefits, which shall include disability and retirement benefits and which may include medical insurance benefits and life insurance benefits. Such study shall include the design, the possible coordination of any of the employee benefit plans of such system with the Social Security Act, the administration and financing of such system and all properly related matters. For the purposes of its study and formulation, the committee is authorized to:

(a) Within the limits of its appropriation, employ the services of legal counsel, investment consultants, actuarial consultants, and the services of others which in the sole discretion of the committee may be necessary to perform its duties.

(b) Obtain from any department, board, commission, agency, officer or employee of the metropolitan government information and data with respect to the compensation of any officer or employee; his or her length of service with the metropolitan government, the former City of Nashville or the former County of Davidson; his or her retirement or other cause of termination of employment; his or her contribution to any employee benefit plan of the metropolitan government as well as any retirement plan listed in section 13.09 (a)—(c) of this article; and such other pertinent information and data as the board may require.

The council is hereby authorized and required to appropriate such funds as may be reasonably necessary for the work of said committee.

Within one year after its appointment, unless the time be extended by resolution of the council, the study and

formulating committee shall submit to the employee benefit board a proposed system of employee benefit plans for officers and employees of the metropolitan government. Said board shall either approve the plan or indicate the specific changes which it recommends in connection therewith. Thereupon the board shall submit the approved plan or the original plan with recommended changes to the council for its action thereon and for the enactment of a system of employee benefit plans.

The mayor shall from time to time thereafter, and at least once every five years, appoint a subsequent study and formulating committee to study benefits, contributions, extent of coverage, actuarial soundness and related matters in connection with the system of benefit plans and to submit to the employee benefits board such amendments as such study may indicate as necessary. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 13.07. Eligibility of officers and employees of metropolitan government.

Wherever used in this article, the term "officers and employees of the metropolitan government" shall mean all officers, including metropolitan judicial officers, and all employees, including classified and unclassified employees, who are regularly employed by the metropolitan government, who are not excluded in accordance with the provisions of section 13.08 of this article, or any other provision of this Charter, and who meet any other eligibility and participation requirements of the system of employee benefit plans adopted by the metropolitan government, but said term shall not include teachers whose benefits system is administered by the metropolitan board of education, as provided in section 13.09 hereof.

Such officers and employees of the metropolitan government shall be members of the system of employee benefit plans established by the metropolitan government and shall not be members of an of the retirement plans listed in section 13.09 (a)—(c) of this article, or in any teachers' benefits system.

Sec. 13.08. Exclusion of certain persons.

Notwithstanding any provision of this Charter to the contrary, any officer or employee of the former City of Nashville or the former County of Davidson who on the day before the effective date of this Charter[4a] was an active or retired member of any retirement plan listed in section 13.09 (a)—(c) of this article shall not be eligible to become a member of the system of employee benefit plans for officers and employees of the metropolitan government; provided, however, that each such officer and employee of the former City of Nashville or the County of Davidson may elect voluntarily, subject to the written approval of the board, to transfer his or her membership from the applicable retirement plan listed in section 13.09 (a)—(c) of this article to membership in such system of employee benefit plans for officers and employees of the metropolitan government. No employee of the electric power board nor any teacher employed by the metropolitan government shall be eligible to become a member of the system of employee benefit plans for the officers and employees of the metropolitan government provided by this article. Notwithstanding any provision of this Charter to the contrary, no person employed by the metropolitan government shall be eligible to become a member or shall continue to be a member of more than one of any of the following:

(a) The system of employee benefit plans for officers and employees of the metropolitan government.

(b) Any retirement plan listed in Section 13.09 (a)—(c) of this article.

(c) The retirement plan for employees of the electric power board.

(d) Any retirement plan for teachers (1) of the former City of Nashville, (2) of the former County of Davidson or (3) of the metropolitan government hereafter adopted pursuant to Section 9.07 of this charter. (Amended by referendum election of November 6, 2018, Amdt. 6)

4a. April 1, 1963.

Sec. 13.09. Continuing rights under retirement plans of former City of Nashville or former County of Davidson.

Pension rights under Section 9.07 of this charter may include medical insurance benefits, and life insurance benefits. Said pension rights, together with those provided by Section 9.06 hereof, shall be administered by the board of education and both shall be an obligation and liability of the metropolitan government. In addition all benefits payable to members, retired members, and their survivors, in accordance with any of the following retirement plans of the former City of Nashville or the former County of Davidson as such plans existed prior to the effective day of this charter shall continue unimpaired for the same duration provided in such plans as they existed prior to the effective date, and such benefits shall be an obligation and liability of the metropolitan government:

(a) The pension, retirement and benefit plan for police officers and firemen of the former City of Nashville created in accordance with the provisions of Article 48 of Chapter 246 of the Private Acts of 1947, and all amendatory acts thereof.

(b) The pension, retirement and benefit plan for the city judge and civil service employees of the former City of Nashville created in accordance with the provisions of Article 48 of Chapter 246 of the Private Acts of 1947 and all amendatory acts thereof.

(c) The retirement plan for officers and employees of the former County of Davidson created in accordance with the provisions of Chapter 274 of the Private Acts of 1943, and all amendatory acts thereof.

It shall be the duty of the investments committee in addition to the duties hereinabove set forth to manage, invest and reinvest the funds and assets of the retirement plans listed in this Section 13.09 (a)—(c), which funds and assets shall be maintained as separate funds in one or more funds of the system of employee benefit plans for the officers and employees of the metropolitan government, as said committee may determine in its sole discretion. It shall be the duty of the employee benefit board to assume jurisdiction over, to administer, and to interpret the provisions of the retirement plans listed above in this Section 13.09; to codify and restate such retirement plans if the board determines that such codification and restatement would be an administrative convenience, and to exercise the duties granted the board in Section 13.05 of this charter with respect to such retirement plans; provided, however, that no provision of this charter shall be construed to affect in any way the benefits payable to members and their survivors of the teachers' retirement plans of the former City of Nashville or the former County of Davidson; and provided, further, that the board shall suspend, as a condition precedent to the employment of any person by the metropolitan government, the benefits payable under such retirement plan during the period such person is regularly employed by the metropolitan government.

Provided any member receiving a service pension of the metropolitan government or the former City of Nashville or former Davidson County shall be entitled to receive their service pension and still serve as a member of the metropolitan council. This provision shall supersede any provision of the Charter or the applicable pension plans to the contrary. (Res. No. 72-380, § 1, 11-7-72; Res. No. 74-869, § 1, 11-5-74; Substitute Res. No. 78-1051, 9-19-78; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 13.09.1. Benefit increase plan.

The appropriate administrator of the system of employee benefits plans shall, after the approval of the metropolitan employee benefit board, recommend to the director of finance, the desirable plan of increase in benefits payable to members, retired members, and survivors of members of the retirement plans listed in Section 13.09 (a)—(c). The director of finance shall approve or modify the plan increase, and forward the same, with a statement of full budgetary implications, to the mayor for his or her approval. The mayor shall approve the plan or approve it subject to his or her modifications. Thereupon, the mayor shall submit the same to the council with recommendations that it be adopted effective at the beginning of the next fiscal year, except the effective date for the fiscal year beginning July 1, 1975, shall be as stated by adopting resolution.

The council shall (1) adopt the benefits increase plan, or (2) reject it. Adoption or rejection shall be by resolution not requiring the approval of the mayor. When a benefit increase plan is rejected by the council, it shall be returned to the metropolitan employee benefit board, which may thereupon formulate another benefit increase plan and transmit the same to the mayor for handling under the provisions above set forth.

Upon the approval of the plan by the mayor and the council, this shall be the benefits payable to members, retired members, and survivors of members of the retirement plans listed in Section 13.09 (a)—(c). (Res. No. 72-380, § 1, 11-7-72; Res. No. 74-869, § 1, 11-5-74; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 13.10. Retirement plans to be actuarially sound.

Any retirement plan adopted by the metropolitan government pursuant to Section 13.06 hereof shall be actuarially sound; that is, annual contributions shall be made by members of such retirement plans and by the metropolitan government to a fund or funds established and invested for the sole purpose of financing benefits provided in accordance with the provisions of such retirement plans. The amount of such annual contributions by the employees and the metropolitan government shall be determined as the sum of normal cost and five (5) percent of the unfunded past service liability, where normal cost and past service liability shall be determined actuarially by a qualified independent actuary based on the entry age normal cost method of funding or the unit credit cost method of funding.

Sec. 13.11. Separate funds; payments from funds; reports.

All assets of any fund maintained in connection with the system of employee benefit plans of the officers and employees of the metropolitan government, as well as the retirement plans listed in section 13.09 (a)—(c) of this article, shall be maintained separate and apart from all other funds of the metropolitan government. The metropolitan treasurer shall keep a separate account for

each such fund and a separate record indicating each disbursement of such fund. Payments from such find or funds shall be made only on order of the board by a warrant to be signed by a person designated by the board and to be countersigned by the metropolitan treasurer. The metropolitan treasurer shall submit to the board monthly financial reports and such other reports as the board may require.

Sec. 13.12. Expense for treatment of accidental injury in course of employment to be borne by metropolitan government.

Any employee of the metropolitan government entitled to benefits under any benefit plan established for the metropolitan government, who is injured by accident arising out of and in the course of his or her employment, shall be entitled to emergency treatment at the nearest or most available doctor's office, hospital or clinic, at the expense of the metropolitan government. Any further treatment, in addition to the emergency treatment herein provided for, shall be furnished the employee free of charge by doctors, nurses, etc., in the employment of board of hospitals. In the event it is determined that specialized treatment not available at a metropolitan hospital should be made available to such employee, then the same shall be made available at the nearest point or place where such specialized treatment is available, which treatment shall be paid for by the metropolitan government. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 13.13. Death benefits.

If no other death benefit financed in whole or in part by the metropolitan government is available, then benefits shall be paid on the death of an employee caused by any injury by accident arising out of and in the course of employment. The amount of the payment shall be the sum of five thousand ($5,000) dollars, and payment shall begin within sixty (60) days after death to the surviving spouse, and if no spouse, to the next of kin without necessity for appointment of an executor or administrator. Determination by the board as to who is entitled to payment of death benefits and the payments made pursuant to such determination shall be final and conclusive. No payment shall be made where the personal injuries resulting in death were due to the employee's willful misconduct or intentional self-inflicted injury, or due to intoxication, or willful failure or refusal to use a safety appliance or perform a duty required by law. No payment shall be made in the case of death due to sickness or disease. The words "employee of metropolitan government," as used in this section, shall not include any member of a board or commission created by this Charter or pursuant to it, and shall not include any contractor or employee of a contractor doing business with the metropolitan government.

Written notice of personal injury shall be given to the board and to the mayor on behalf of an employee within thirty (30) days after such personal injury was sustained. In the event of claim for death benefit, the board shall make or cause to be made a full investigation of the facts and shall determine, on the basis of written opinion of the metropolitan attorney, whether the claim is legally and properly payable.

The death benefit payment of $5,000 shall be made as follows: The sum of five hundred ($500) dollars shall be paid at the time of the initial settlement, and the balance shall be paid at the rate of one hundred ($100) dollars per month for forty-five (45) consecutive months. Payments made pursuant to this section shall be free from the claims of creditors and not subject to attachment, garnishment or other process of law.

The provisions with respect to death benefits shall apply to all persons employed by the metropolitan government, including the employees of all departments, boards and commissions.

ARTICLE 14. METROPOLITAN GENERAL SESSIONS COURT

Sec. 14.01. Created; parts.

There is hereby created and established a metropolitan general sessions court in and for the County of Davidson, State of Tennessee, which shall be divided into nine (9) parts; each of which shall be designated in their respective divisions, Metropolitan General Sessions Court of Nashville and Davidson County, Tennessee. (Res. No. 65-671, § 1, 7-20-65; Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.02. Jurisdiction and authority; justices of the peace divested of certain jurisdiction and authority.

The metropolitan general sessions court of Nashville and Davidson County, Tennessee, is hereby vested with all the jurisdiction and shall exercise all the authority conferred by law upon justices of the peace in civil and criminal cases, suits and actions; and the jurisdiction of the justices of the peace of Davidson County are hereby divested of all such jurisdiction and authority. The court shall have exclusive jurisdiction to hear, try and dispose of cases involving the breach of any and all ordinances, regulations, resolutions and private acts of the metropolitan government, and to impose fines for said breach of any

and all ordinances, regulations, resolutions and private acts of the metropolitan government. It shall have exclusive jurisdiction to hear, try and dispose of cases in which violations of traffic laws, ordinances regulations and resolutions of the metropolitan government are charged, or in which offenses are charged under state law regulating the operating, maintenance of motor vehicles and to impose fines for violation of such laws, ordinances, regulations and resolutions and to suspend the driver's license of any person found guilty of such violation as the case may be. Said court shall have jurisdiction to bind over offenders to the grand jury where probable cause is found to exist in cases involving violation of the criminal laws of the state and, in lieu of bond, to commit to jail persons so charged. The court shall exercise all the jurisdiction and authority now and hereafter conferred by general act upon the court of general sessions. (Res. No. 71-1222, § 1, 8-5-71)

Editor's note—In addition to the amendment adopted by Res. No. 1222, § 14.02 was also amended at election held Aug. 4, 1983.

Editor's note—An Environmental Court was established by Tenn. Pub. Acts 1993, Chapter 212, and later amended by Tenn. Pub. Acts, Chapter 667, 2002.

Sec. 14.03. Trial upon plea of guilty or waiver of indictment, presentment of grand jury investigation and jury trial.

The court is hereby vested with jurisdiction and authority to try and determine and render final judgment in all misdemeanor cases brought before it either by warrant or information wherein the person charged with such misdemeanor offense enters a plea of guilty or requests a trial upon the merits, or expressly waives an indictment, presentment of a grand jury investigation and a jury trial. In any such case, the trial is presented before the judge without the intervention of a jury. It shall be the mandatory duty of the judge of said metropolitan general sessions court when a defendant is brought before the court upon arraignment or trial to advise such defendant of his or her constitutional rights to the aid of counsel, the right to be tried only upon presentment or indictment preferred by a grand jury, the right to make a statement in reference to the accusation or the right to waive such statement, and the right to a trial by jury. Upon defendant agreeing in writing to waive the right to be put to trial only by presentment or indictment preferred by a grand jury and the right to a trial by jury of his or her peers, the court may proceed to hear and determine said case as provided hereinabove. Said waiver shall be written on or attached to the warrant stating in words and figures as follows:

The defendant . . . . . pleads. . . . . guilty to the offense of . . . . . and waives his or her right to be tried only by indictment or presentment preferred by a Grand Jury, and likewise waives a trial by a jury of his or her peers. (Res. No. 65-671, § 1, 7-20-65; Res. No. 71-1222, § 1, 8-5-71; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 14.04. Judges—Number; qualifications.

There shall not be more than one (1) judge for each division of said court as provided in section 14.01 herein; each judge possessing the qualifications and being duly elected for the term of office as provided in article 6, section 4 of the Constitution of the State of Tennessee, for judges of inferior courts. Nine (9) judges are hereby authorized to serve the court and they are as follows, to wit: Six (6) duly elected general sessions court judges of Davidson County, Tennessee, which shall be the judges of divisions I—VI, and the existing duly elected judges of the metropolitan court of Nashville, Tennessee, who shall be the judges of divisions VII through IX; and additional judges may be provided by act of the state legislature as it shall deem necessary; and by appointment and/or election as provided further herein. In addition to the qualifications prescribed in the Constitution of the State of Tennessee, the judges of said court shall have been licensed to practice laws by the Supreme Court of Tennessee for not less than five (5) years prior to election to office, and shall have been residents of Nashville, Davidson County, Tennessee, for not less than the same period; and shall not be less than thirty (30) years of age or more than sixty-five (65) years of age at the time of their qualification; providing, that the provisions hereinafter set forth regarding age shall not apply to judges holding office at the time this amendment is adopted as provided further herein. (Amended by Res. No. 71-1222, § 1, 8-5-71)

Editor's note—It is the Department of Law's opinion that the maximum age restriction (65 years) set forth in Charter Section 14.04 is unconstitutional and would not be enforced by a court.

Sec. 14.05. Same—Election; term of office.

The first nine (9) judges of the court hereby transferred shall serve the court until their tenures of office to which elected expires, and all branches of the court shall be filled by the qualified voters of Metropolitan Nashville, Davidson County, Tennessee, in the August 1974 general election for term of eight (8) years from the first day of September, 1974, and subsequently at the August general election thereafter for each like term. The judges to serve the court hereinbefore set out shall be the judges of the respective divisions I—IX, respectively. Additional judges authorized by act of the legislature as provided in section 14.04 hereof, shall be elected at the next general election following their appointment and subsequently

at the next general election required for judges of the entire court. Each person seeking election as a judge of said court shall be required to run for a specific division, branch or part as established hereinabove. (Amended by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.06. Same—Oath of office.

The oath of office prescribed for judges of said court shall be the same as that prescribed for circuit judges and chancellors and shall be taken and filed with the court administrator of the metropolitan general sessions court. (Amended by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.07. Same—Compensation; restrictions on practice of law.

The judges of the court shall be paid the same compensation and shall be under the same restriction as to the practice of law as provided by general law for judges of the circuit court of Davidson County; and such compensation shall be paid in at least equal monthly installments out of the general funds of the metropolitan government of Nashville and Davidson County. (Amended by Res. No. 65-671, § 1, 7-20-65; Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.08. Same—Retirement benefits; removal from office.

The judges of said court shall be eligible to all retirement benefits as provided by general law for county paid judges. The now existing metropolitan judges, who will be the judges of divisions VII, VIII and IX of the court, shall have the right to elect as to whether or not they shall remain under the same retirement system as set forth in article 13 of the Charter of the Metropolitan Government of Nashville and Davidson County or participate in the state pension system for county paid judges as provided by general law. The judges of said court shall be subject to removal from office as prescribed by law for circuit judges and chancellors. (Amended by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.09. Same—Jurisdiction, authority and powers generally.

The judges of said court shall have the same authority as provided by law by circuit court judges and chancellors to grant fiats for writs of injunction, attachments and other extraordinary process. Said judges shall have the jurisdiction and authority conferred upon trial judges by chapter 21, title 40 of the Tennessee Code Annotated [Repealed]* relative to suspension of sentences and revocation thereof. They shall have the power to remit fines and to release sentences imposed by them. Said judges are empowered to issue subpoenas to compel the attendance of witnesses and upon the failure of any witness so subpoenaed to attend, to compel his or her attendance by attachment. Said judges shall further be empowered to punish any person for contempt committed in the presence of the court by imposing a fine not to exceed twenty-five dollars ($25.00); and/or jail sentence not to exceed ten (10) days, and in default of payment of a fine so imposed, to imprison such guilty person in the metropolitan workhouse or jail until said fine is discharged. (Amended by Res. No. 71-1222, § 1, 8-5-71; Res. No. 88-526, § 20, 10-4-88; amended by referendum election of November 6, 2018, Amdt. 6)

***Editor's note—**Repealed by Acts of 1989, ch. 591, § 7. For present provisions concerning criminal sentencing, see ch. 35, part 3 of title 40.

Sec. 14.09A. Same—Presiding judge.

There is hereby created the position of presiding judge of the metropolitan general sessions court of Nashville and Davidson County, who shall be one (1) of the judges of said court. The presiding judge of the court shall be selected by a majority vote of the judges of the court. In the event of a vacancy or incapacity or inability of the presiding judge, the remaining judges of the court by majority vote, shall select another presiding judge who shall be one of the judges of said court to serve the remaining term. The presiding judge shall be responsible for the preparation and submittal of budgets of said court to the metropolitan government and its appropriate departments, committees and agencies. He or she shall have authority to call meetings of the other judges of the court who shall be required to attend such meetings for he or she purpose of discussing various problems pertaining to the conduct and operation of said court. The presiding judge shall promulgate all rules necessary for the supervision, conduct and administration of the court, including but not limited to the following: 1. Prescribing the days and hours when the courts sitting in branches, parts or divisions shall be in session, including a night court session as shall be deemed necessary; 2. assigning of civil, criminal and traffic cases to respective branches, parts and divisions of said court. (Amended by Res. No. 71-1222, § 1, 8-5-71; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 14.09B. Separate dockets to be kept for civil, criminal and traffic cases.

Separate dockets shall be kept in said court for civil, criminal and traffic cases, and shall be in such form and kept in such manner as the presiding judge shall prescribe. (Amended by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.10. Public defender—Qualifications; selection; term; duties.

There shall be a public defender for the metropolitan government who shall be elected by the voters at the regular August election in 1966 and who shall hold office for a term of four (4) years, commencing September 1, 1966, and until his or her successor shall be duly elected and qualified. The public defender shall be a person licensed to practice law in Tennessee and he or she shall be at the time of his or her election or appointment, and shall continue to be during the term of office, a resident of the area of the metropolitan government. The public defender shall not engage in private practice of criminal law during his or her term, but he or she may conclude all matters pending when elected or appointed. A vacancy in the office of public defender shall be filled by the metropolitan council until the next general August election, when successor shall be elected by the voters to fill the unexpired term or the ensuing term as may be the case.

Upon request by the defendant, or upon order of the court, it shall be the duty of the public defender to defend, without expense, and to represent generally all persons who are determined by the court or the public defender to be without means to employ counsel and who have been indicted by the grand jury or charged with the commission of any crime. The public defender shall also, upon request, give counsel and advice to such person, in and about any charge against them upon which he or she is conducting the defense. The public defender shall prosecute all appeals to a higher court on behalf of any person financially unable to employ counsel who has been convicted upon such charge, where in his or her opinion there is error in the conviction had, and such appeal will or might reasonably be expected to, result in the reversal or modification of the judgment or conviction. The public defender shall perform such other duties as may be assigned by ordinance. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 14.11. Same—Compensation; appointment, qualifications and duties of assistants.

The public defender shall receive a salary of eight thousand dollars ($8,000.00) per annum, payable semimonthly.

For the proper conduct of the business of his or her office the public defender is authorized to employ one (1) deputy or assistant at a salary not to exceed five thousand dollars ($5,000.00) per annum, payable semimonthly, and to employ one (1) stenographer at a salary not to exceed four thousand dollars ($4,000.00) per annum, payable semimonthly. Any person appointed assistant public defender or deputy public defender shall be licensed to practice law in Tennessee and shall be at the time of his or her appointment, and shall continue to be during the period of his or her service, a resident of the area of the metropolitan government. Any person appointed assistant or deputy public defender shall serve at the pleasure of the public defender and notice of his or her appointment or of the revocation of the same shall be in writing and filed with the clerk of the criminal court. Such assistant or deputy public defender may attend all criminal courts and discharge the duties imposed by law upon the public defender. The assistant or deputy public defender designated by the public defender or by the court in his or her absence, shall perform the duties of said office during any period when the public defender is disabled or otherwise unable to attend court. No assistant or deputy public defender shall engage in the private practice of criminal law during the period of his or her service, except to conclude matters pending when he or she was appointed.

The council by ordinance may provide such additional assistants, investigators or other personnel as it may determine the public defender to require, and also by ordinance may enlarge or restrict the duties of the public defender as to the class of cases in which he or she shall act as attorney for indigent defendants. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 14.12. Designation of special judge when judge unable to hold court.

In the event that any judge of said court fails to attend, cannot preside over any pending case, or for any reason is unable to hold court, such judge may select a qualified person to hold court as provided in chapter 533 of the Public Acts of the State of Tennessee for 1968.[5] (Amended by Res. No. 71-1222, § 1, 8-5-71)

5. See T.C.A., § 16-15-209.

Sec. 14.13. Filling of vacancies in office of judge.

In the event of any vacancy in the office of the judge of the court for any cause, either by death, resignation or removal, the governor of the State of Tennessee shall be empowered to appoint some qualified person to fill such vacancy until September 1 following the next August general election, at which election said vacancy shall be filled for the remainder of such term by the qualified voters of Metropolitan Nashville, Davidson County, Tennessee. (Amended by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.14. Service of process.

The sheriff of the metropolitan government or his or her duly appointed deputy or any person appointed by a judge of the court for such purpose, shall be empowered to serve regular process, writs and papers issued by said court with the same authority and power provided for such service in the inferior courts of this state. Any person specifically appointed for such purpose under this section shall serve without compensation. (Added by Res. No. 65-671, § 1, 7-20-65; amended by Res. No. 71-1222, § 1, 8-5-71; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 14.15. Cost bond or cash deposit required in civil cases; exceptions; schedule of deposits.

Before any original process shall issue from said court in a civil case, the plaintiff shall exercise a cost bond as good security as deemed necessary by the court clerk in the sum of twenty-five dollars ($25.00) or in lieu thereof, make a cash deposit with the court clerk of not less than three dollars ($3.00) nor more than twenty-five dollars ($25.00) to cover the cost of such proceeding and, on motion, the court may increase or decrease the security so required. The presiding judge with the approval of the majority of the judges shall be authorized to establish a schedule of deposits in the various forms of action and to publish such schedule which shall be uniformly adhered to in the various parts, divisions or branches of said court. Provided, that any resident of this state who shall be eligible to take and prescribe to the oath provided for poor persons may commence and propose an action on paupers oath as provided in Tennessee Code Annotated, section 20-12-127. The provisions of this section shall not apply to suits instituted by the metropolitan government, its agencies or departments. (Added by Res. No. 71-1222, § 1, 8-5-71; Res. No. 88-526, § 21, 10-4-88)

Sec. 14.16. Bail in misdemeanor cases.

In all misdemeanor cases where bond is made for appearance before the court, each of the judges of said court is hereby authorized and empowered to prescribe the amount of bail, either cash or otherwise, with the same discretionary powers granted to courts of record by Tennessee Code Annotated, section 40-11-113. Upon default in appearance of the defendant, the judge before whom such default occurs is hereby authorized to grant relief, lessen or remit liability upon the recognizance, as provided for other courts in Tennessee Code Annotated, section 40-11-203 and section 40-11-204; and in case of cash bonds, said judge may hear proof and order any fine imposed and cost to be paid out of such bond. Any unused surplus of cash bond and other funds in excess of cost paid for exoneration of sureties shall be disbursed by the court clerk as provided by law for forfeitures. (Added by Res. No. 71-1222, § 1, 8-5-71; Res. No. 88-526, §§ 22, 23, 10-4-88)

Sec. 14.17. Rules and regulations for bondsmen; rules for release of persons on own recognizance bonds and deposit of driver's license.

The presiding judge, with the approval of the majority of the judges, shall prescribe and shall cause to be prescribed such reasonable rules and regulations for professional bondsmen undertaking to do business before the court as may be necessary for the orderly and expeditious conduct and operation of said court, as provided in Tennessee Code Annotated, sections 40-4-101 through 40-4-108. Said presiding judge, with the approval of the majority of the judges, shall also promulgate and publish rules for release of persons charged with violation of state law on their own recognizance bonds; and/or the deposit of driver's license in lieu of bond for persons charged with the violation of traffic laws. (Added by Res. No. 71-1222, § 1, 8-5-71; Res. No. 88-526, § 24, 10-4-88)

Sec. 14.18. Persons authorized to prosecute cases before court.

The metropolitan department of law of the metropolitan government is hereby authorized to prosecute before the court, any and all cases involving violations of ordinances, regulations, resolutions and Private Acts of the metropolitan government filed in or pending before said court. The district attorney general of Davidson County, Tennessee, or his or her duly authorized representatives, are hereby authorized to prosecute before the court any and all violations of state law filed in or pending before said court. (Added by Res. No. 71-1222, § 1, 8-5-71; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 14.19. Court administrator.

The office of court administrator of the metropolitan general sessions court is hereby created. The court administrator of the court shall be appointed by a majority of the judges of said court and shall serve for a period of three (3) years, with a salary of fifteen thousand dollars ($15,000.00) per year, payable in not less than monthly installments, and he or she shall act as liaison between the court and clerk's office of the

metropolitan general sessions court. The court administrator shall perform the following duties and functions, including but not limited to:

A. Forming and submitting continually to the presiding judge of the court, recommendations for improving the efficiency and operation of the metropolitan general sessions court, including civil, criminal and traffic case procedure;

B. Investigating complaints, involving the conduct and operation of the court, taking action upon such complaints as may be necessary or appropriate under the systems, subject to approval of the presiding judge in case of a serious nature;

C. Assist the presiding judge in the preparation of budgeting and fiscal reports and documents as may be necessary and proper for the operation and maintenance of the court;

D. Approving all claims for expenditures of such funds as may be appropriated for the court, including requisitions and claims for the purchase of necessary equipment, materials and supplies so appropriated;

E. That it secure and maintain accommodations, securing supplies and materials for the judges, and other officers and employees of the court;

F. Collecting and compiling data, including cases filed, disposing of those pending, and information on expenditures and receipts of the court, and preparation of quarterly and annual reports on these and other court activities;

G. Act as secretary of any and all matters of the court;

H. Keeping and maintaining the docketing as prescribed in section 14.09B herein, or in such form and manner as the presiding judge shall prescribe;

I. Perform such other relative duties as may be requested or assigned by the presiding judge. (Added by Res. No. 71-1222, § 1, 8-5-71; amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 14.20. Clerks—How furnished; chief deputy clerks; compensation; bonds.

One (1) clerk's office shall serve the metropolitan general sessions court, and the necessary clerks for the operation of the same shall be furnished by the criminal court clerk, Davidson County, Tennessee, for the operation of the criminal court part of the metropolitan general sessions court, and the said criminal court clerk shall designate one (1) deputy clerk as chief deputy; and all necessary deputy clerks for handling the civil cases of the metropolitan general sessions court will be furnished by the circuit court clerk, Davidson County, Tennessee, who shall name one as chief deputy clerk; and the clerks now serving the three (3) divisions of the metropolitan court are hereby transferred to the clerk's office to handle the metropolitan warrants and procedures for the metropolitan general sessions court, and the chief deputy clerk, now serving said court, shall continue as chief deputy clerk, when all are transferred at their salaries now being paid. The salary of all personnel selected and serving the metropolitan general sessions court, as hereinabove provided shall be established by the clerk appointing them, subject to the approval of the presiding judge, except those clerks involved in handling the municipal warrants, whose salary shall be approved by the presiding judge in accordance with the metropolitan pay schedule plan for the metropolitan government, Nashville, Davidson County, Tennessee. The deputy clerks shall be required to give bond upon the assignment of their duties of office, which shall be in the manner and amounts set by general law. (Added by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.21. Same—Powers of deputy clerks.

The deputy clerks are hereby authorized to administer oaths, to take appearance and appeal bonds when the amount thereof has been set by a judge and to issue all process authorized by law. All process shall be issued in the name of the State of Tennessee and may be served by any law enforcement officer authorized by law for such purpose or as may be provided by this Act. (Added by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.22. Costs and fees.

In any and all matters, the costs and fees of the court shall be as follows:

A. In cases involving violation of ordinances, regulations, resolutions or private acts of the metropolitan government, such costs and fees as may be required by ordinance by the metropolitan council;

B. In civil cases, suits and actions, such cost and fees as may be required by law;

C. For violation of state law, such costs and fees as may be required by General Acts of the legislature for general sessions courts. There shall be published a schedule of set cost and fees, as the judges shall direct. The fees and other compensation of the sheriff and his or her deputies, game wardens and state highway patrol for the execution and service of writs and process of the court shall be the same as those required by law.

Such fees and compensation as may be due for service rendered by the court shall be paid to the respective clerks servicing said court. Said cost, fees and mileage of witness fees, commissions and emoluments of the sheriff and his or her deputies, game wardens,

state highway patrol and other officers for service rendered to the court, and the fines and forfeits imposed by the court and all other funds coming to the court, shall be received, accounted for and disbursed by the respective clerks as provided herein. (Added by Res. No. 71-1222, § 1, 8-5-71; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 14.23. Disposition of monies and receipts.

The clerk shall deposit to his or her respective account, all funds and receipts accruing to the court under section 14.22 herein and any and all other monies and receipts accruing to said court. Any and all disbursements from such account shall be made upon orders of the court and as required by law or in his or her absence, inability or incapacity, by such person as the judges shall designate. The judges may authorize the establishment of such bank account or accounts as may be necessary for the management of funds held as judgments in civil cases. (Added by Res. No. 71-1222, § 1, 8-5-71; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 14.24. Court officers.

Each judge of the court is hereby authorized to appoint two (2) court officers who shall serve at the pleasure of said judge and whose compensation shall be the same as that paid to the officers of the criminal court and shall be paid from the general funds of the metropolitan government. It shall be the duty of said court officers to maintain order during sessions of the court, to serve process as ordered and to perform such other duties as may be prescribed by the judge. Said court officer shall, while acting in the performance of their duties, possess and exercise police powers to the same extent as that granted members of the metropolitan police department. (Added by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.25. Probation department or division authorized.

The judges of the court are hereby authorized to create and establish a department or division of probation which shall be a division of the metropolitan government. (Added by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.26. Appeals.

An appeal from a civil judgment or judgment for any ordinance, regulation, resolution or private acts may be taken to the circuit court of Davidson County, Tennessee. Such appeal shall be taken upon bond or in lieu of bond, on the paupers oath as provided in Tennessee Code Annotated, section 20-12-127, within the time and in the manner prescribed by law for appeals from courts of general sessions to the circuit courts, and appeals from writs of certiorari from judgments of the metropolitan general sessions court shall likewise be made in accordance with law.

Appeals on behalf of the defendant from a judgment in any criminal case tried by the court may be taken to the criminal court of Davidson County, Tennessee. Such appeal shall be prayed and granted within ten (10) days from the rendition of the judgment or as otherwise provided by law, and shall not act as a stay or supersedeas of the judgment unless the defendant shall execute an appeal bond with good and solvent surety, to pay the fines and costs and other costs adjudged upon appeal. Provided, that this section shall not be construed to require the metropolitan government to make bond to perfect any appeal taken hereunder. Any such appeal shall be perfected by written notice from the director of the metropolitan department of law or any assistant thereof, addressed to the court clerk of the metropolitan general sessions court. (Added by Res. No. 71-1222, § 1, 8-5-71; Res. No. 88-526, § 25, 10-4-88)

Sec. 14.27. Court to take judicial notice of Charter and general and urban services districts.

In addition to any matters of which the court is authorized, empowered and required to take judicial notice by law, said court shall take judicial notice of the Charter of the metropolitan government of Nashville and Davidson County, Tennessee, and the general and urban services district of said metropolitan government as set forth in the Metropolitan Charter. (Added by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.28. Rules of court.

The laws regarding pleading and practice in civil cases, issuing of writs and process in civil cases in the courts of general session of this state at the time of the adoption of this amendment shall be applicable to and shall govern practice and procedures in the court until such time as rules and practices and procedures are promulgated as provided in section 14.09A herein. (Added by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.29. Transfer of files, dockets, funds, suits, etc., from former courts.

Upon the effective date of this Act, as provided in section 14.30 herein, any and all files, dockets, records, equipment, funds and criminal and civil cases, suits, actions and outstanding writs and process, then existing in the court of general sessions of Davidson County, Tennessee, and the metropolitan court of the metropolitan

government of Nashville and Davidson County, Tennessee, shall be deemed to have been transferred to the metropolitan general sessions court of Nashville and Davidson County, Tennessee, and said court shall have jurisdiction and authority to hear and determine all undisposed cases under this section as though all such cases had originated in such court created herein. (Added by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.30. Severability of provisions.

Each of the provisions of this amendment [5a] is hereby declared to be severable, and if any section or sections, clauses or parts are invalid or unconstitutional, the remaining provisions of said amendment shall continue in full force and effect, it being the express legislative intent as declared herein that the amendment would have been adopted even if such invalid or unconstitutional matters had not been included therein. (Added by Res. No. 71-1222, § 1, 8-5-71)

5a. Sections 14.01 to 14.09B; 14.12 to 14.32.

Sec. 14.31. Continuation of office of public defender.

The office of public defender for the metropolitan government as it is presently constituted shall be continued with the same powers, duties, functions, privileges and provisions for personnel and compensation as is presently provided for, there being no intention in this amendment to alter in any way the office of the public defender or the rights, privileges and duties of the incumbent. (Added by Res. No. 71-1222, § 1, 8-5-71)

Sec. 14.32. Continuation of juvenile court; jurisdiction of metropolitan general sessions court limited in juvenile matters.

The juvenile court for Davidson County created by chapter 390 of the Private Acts of 1953 is hereby recognized as a court of the metropolitan government of Nashville and Davidson County. Pursuant to section 7-3-311, Tennessee Code Annotated, said court is hereby provided for and continued, with all rights, duties, powers, obligations, privileges and responsibilities as set forth in said chapter 390 of the Private Acts of 1953 and any acts amendatory thereof. The jurisdiction of the metropolitan general sessions court created by section 14.01 of this Charter shall not extend to matters over which the juvenile court shall have been given exclusive jurisdiction by said section 7-3-311, or other applicable law. (Added by Res. No. 71-1222, § 1, 8-5-71; Res. No. 88-526, § 26, 10-4-88)

ARTICLE 15. ELECTIONS AND REMOVAL OF OFFICERS

Sec. 15.01. When general metropolitan elections held; who may vote; qualifications of candidates.

For the purpose of electing a mayor, vice-mayor, five (5) councilmembers-at-large and thirty-five (35) district councilmembers, there shall be held on the first Thursday in April, 1966, and on the first Thursday in August of 1971, and each four (4) years thereafter, a general metropolitan election. At such general election each voter shall be entitled to vote for one (1) candidate for mayor, one (1) candidate for vice-mayor, five (5) candidates for councilmembers-at-large, and one (1) candidate for district councilmember from the district wherein the voter resides; and the names of all qualified candidates shall be so placed on the ballot or voting machine as to accord the voter such right. All persons who are lawfully registered and who are qualified to vote for members of the general assembly of the State of Tennessee shall be qualified to vote in the metropolitan elections. The name of any candidate shall be included on the ballot or the voting machines when a written petition signed by at least twenty-five (25) qualified voters shall so request and when said petition shall be filed with the county commissioners of election at least within the number of days prior to the election provided by general law for the filing of qualifying petitions of candidates for election to county offices. (Amended by Res. No. 65-670, § 1, 7-6-65; Res. No. 66-1053, § 1, 8-16-66; amended by referendum election of November 6, 2018, Amdt. 6)

* **Note:** See Tenn. Const. ART. VII, SECT. 5:

Sec. 5. Civil officers—Election—Vacancies.

Elections for Judicial and other civil officers shall be held on the first Thursday in August, one thousand eight hundred and seventy, and forever thereafter on the first Thursday in August next preceding the expiration of their respective terms of service. The term of each officer so elected shall be computed from the first day of September next succeeding his or her election. The term of office of the Governor and of other executive officers shall be computed from the fifteenth of January next after the election of the Governor. No appointment or election to fill a vacancy shall be made for a period extending beyond the unexpired term. Every officer shall hold his or her office until his or her successor is elected or appointed, and qualified. No special election shall be held to fill a vacancy in the office of Judge or District Attorney, but at the time herein fixed for the biennial election of civil officers; and such vacancy shall be filled at the next Biennial election recurring more than thirty days after the vacancy occurs.

Sec. 15.02. Vote required for election in metropolitan elections; runoff elections.

In the general metropolitan election those qualified persons who receive a majority of the votes cast for

mayor, vice-mayor and district councilmember for each of the thirty-five (35) districts shall be elected to their respective offices; and those five (5) qualified persons who receive the highest number of votes, being also a majority of the total vote cast for the office of councilmembers-at-large, shall be elected to such office.

In the general election if no candidate shall receive a majority of all the votes cast for the office of mayor, vice-mayor or district councilmember, a runoff election shall be held with respect to such unfilled office or offices. In the runoff election only the names of the two (2) candidates who received the highest number of votes cast for such office which failed to be filled at the general election shall be placed on the official ballot or voting machine.

In the general election if less than five (5) candidates receive a majority of the total vote cast for the office of councilmembers-at-large, the number receiving a majority shall be elected and a runoff election shall be held with respect to the unfilled offices. For the purpose of this section, "the total vote cast for the office of councilmembers-at-large" shall be deemed to be one-fifth of the aggregate number of votes received by all candidates for the office of councilmembers-at-large. In the runoff election, there shall be included on the ballot or voting machine a number of candidates which is twice the number of vacancies remaining to be filled. The candidates to be so included shall be those who in the general election received the highest vote less than a majority and the other candidates shall be eliminated. In the event of a tie vote among candidates, one (1) of whom should be in the runoff except for such tie, then all such candidates so having tie votes shall be in the runoff. In a runoff election for councilmembers-at-large it shall not be necessary to receive a majority and those candidates who have the highest vote and who equal in number those remaining to be elected shall be elected.

The runoff election, if required, shall be held on the third Thursday in May, 1966, being three (3) weeks subsequent to the general election held in that year, and, thereafter, the runoff election shall be held on the second Thursday in September, being five (5) weeks subsequent to each general election held after 1995. In the case of tie between candidates for the same office, it shall be broken as provided by Tennessee Code Annotated, section 2-8-111. (Amended by Res. No. 65-670, § 1, 7-6-65; Res. No. 88-526, § 27, 10-4-88); amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—Section 15.02 was amended at a referendum election held November 5, 1996.

Sec. 15.03. Elections subsequent to vacancies.

A. Whenever a vacancy in the office of mayor shall exist more than twelve (12) months prior to the expiration of the term, a special election shall be held in accordance with Tennessee Code Annotated section 2-14-102.

B. Whenever a vacancy in the office of vice mayor shall exist more than twenty-four (24) months prior to the expiration of the term, a special election shall be held in accordance with Tennessee Code Annotated section 2-14-102.

C. Whenever a vacancy in the office of district council member shall exist more than eight (8) months prior to the expiration of the term, a special election shall be held in accordance with Tennessee Code Annotated section 2-14-102.

D. Whenever a vacancy in the office of councilmember-at-large shall exist, no special election shall take place and the office shall remain vacant for the remainder of the term.

E. Whenever a special election is called for by this section, such special election shall be ordered by the county commissioners of elections and they shall give notice thereof as provided by Tennessee Code Annotated section 2-14-105.

F. If in such a special election to fill a vacancy for the unexpired term of the office of mayor, no candidate shall receive a majority of all the votes cast for such office, a runoff election shall be held five (5) weeks subsequent to the first special election to fill a vacancy in accordance with the provisions hereinbefore set forth in the case of a general metropolitan election. In the event that the date prescribed for the runoff election falls on a major holiday or creates other major logistical concerns, the Election Commission shall be empowered to schedule the election no more than two days prior to the prescribed date.

G. If in such a special election to fill a vacancy for the unexpired term of the office of vice mayor or district council member no candidate shall receive a majority of all the votes cast for such office, a runoff election shall be held in the manner prescribed in Part F of this section.

H. The provisions of section 15.01 hereof with respect to voting in general metropolitan elections and with respect to qualifying as a candidate shall apply to special elections at which time a vacancy is filled.

I. Any unfilled vacancy in existence at the time of the adoption of this amendment, and any subsequent vacancy, shall be subject to the provisions of this section. (Amended by Res. No. 65-670, § 1, 7-6-65; Res. No. 88-526, § 28, 10-4-88; amended by Res. No.

RS2007-1846, referendum election of August 2, 2007; amended by Res. No. RS2018-1314 (Amdt. B), referendum election November 6, 2018, Amdt. 3)

Editor's note—In addition to the legislation given in the history note, § 15.03 was amended in its entirety by virtue of a referendum petition approved November 8, 1994, and amended again at a referendum election held November 5, 1996.

Sec. 15.04. Applicability of general election laws.

The general election laws of the state shall be applicable to all metropolitan elections, except as otherwise provided in this article.

Sec. 15.05. Ouster of metropolitan officers.

The mayor, vice-mayor, members of the council, and every member of a metropolitan board or commission appointed for a special term shall be subject to ouster under the terms and provisions of Tennessee Code Annotated, sections 8-47-101 through 8-47-107, and within the meaning of such law metropolitan officers are hereby declared to be county and municipal officers. (Res. No. 88-526, § 29, 10-4-88)

Sec. 15.06. Recall of metropolitan officers.

The mayor, vice-mayor and members of the council and metropolitan board of public education may be removed from such office by the qualified voters of the metropolitan government or of a councilmanic or school district according as the official sought to be removed has been elected by the voters of the metropolitan government or of a councilmanic or school district at any time except during the first one hundred and eighty (180) days or the last one hundred and eighty (180) days of their terms, in the manner hereafter provided.

Editor's note—Section 15.06 was added by referendum election held Aug. 1, 1991.

Sec. 15.07. Procedure in general.

In order to recall an official set out in Section 15.06 of this Metropolitan Charter, a petition demanding the election of a successor of the person sought to be removed and containing a statement of the reason(s) why removal is sought must be filed with the metropolitan clerk. The only purpose of such statement is to furnish information to the electors.

A recall petition for the offices of mayor, vice mayor, and councilmember-at-large shall contain signatures and addresses of registered qualified voters in number equal to fifteen (15) percent of the registered qualified voters in Davidson County; a recall petition for the offices of metropolitan board of public education and district councilmember shall contain the signatures and addresses of registered qualified voters in number equal to fifteen (15) percent of the registered qualified voters of the district from which the officer was elected. The above percentages shall be computed from the total number of qualified registered voters for each office according to the latest official count of registered qualified voters made by the Davidson County Election Commission thirty (30) days prior to the date the recall petition is initially filed with the metropolitan clerk. The signatures and addresses to any recall petition need not all be appended to one sheet of paper. The verification of the signatures shall be made by the Davidson County Election Commission and certified to the metropolitan clerk.

A notice of the intention to obtain signatures for a recall petition, together with the form of the recall petition, must be filed with the metropolitan clerk prior to obtaining signatures of registered qualified voters. Such recall petition containing the required number of registered qualified voters must be filed with the metropolitan clerk not later than thirty (30) days following the date the notice is properly filed. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—Section 15.07 was added by referendum election held Aug. 1, 1991. The third paragraph was added to § 15.07 by referendum election held November 5, 1996.

Sec. 15.08. Holding the recall election.

If the petition contains the requisite number of proper signatures, the metropolitan clerk shall immediately certify to the Davidson County Election Commission a copy of same and it shall thereupon be the duty of the Davidson County Election Commission to give notice and make all arrangements for the holding of such recall election, and the same shall be conducted, returned, and the results thereof declared, as provided by law in the case of a general election for the office held by the incumbent to which the petition relates. The Davidson County Election Commission shall hold the recall election within the time limits set in Tennessee Code Annotated, Section 2-3-204 for holding elections on questions.

Any person sought to be removed may be a candidate to succeed himself or herself; and unless he or she in writing or otherwise requests, it shall be the duty of the Davidson County Election Commission to place his or her name on the official ballot without nomination or petition by anyone. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—Section 15.08 was added by referendum election held Aug. 1, 1991.

Sec. 15.09. Recall election results—Votes required for election—Runoff election.

In any such recall election, the candidate receiving a majority of the votes cast for the office involved shall be

declared elected and shall hold the office during the unexpired term of the incumbent. If at such recall election, some person other than the incumbent receives a majority of the votes cast, the incumbent shall thereupon be deemed removed from office upon the qualification of his or her successor so elected.

If at such recall election no person receives a majority of the votes cast for the office involved, there shall be a runoff election and it shall thereupon be the duty of the Davidson County Election Commission to give notice and make all arrangements for the holding of such runoff election, and the same shall be conducted, returned, and the results thereof declared, as provided by law in the case of a general election for the office held by the incumbent to which the petition relates.

In the runoff election, only the names of the two (2) candidates who received the highest number of votes cast for the office involved shall be placed on the official ballot. The runoff election, if required, shall be held by the Davidson County Election commission not less than thirty (30) days nor more than forty-five (45) days after it is determined that a runoff election is required. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—Section 15.08 was added by referendum election held Aug. 1, 1991.

Sec. 15.10. Failure to qualify—Tie vote.

In case the person who receives a majority of the votes cast for the office involved shall fail to qualify within ten (10) days after receiving notice of election, the office shall be deemed vacant and filled as provided by law for the filling of a vacancy in said office; but if the incumbent receives a majority of the votes cast in such election, he or she shall continue in office.

In case of a tie vote between the candidates in such runoff election, it shall be broken as provided by Tennessee Code Annotated, Section 2-8-111. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—Section 15.10 was added by referendum election held Aug. 1, 1991.

ARTICLE 16. FUNCTIONS OF CONSTITUTIONAL AND COUNTY OFFICERS*

***Annotation—**Constable is a constitutional officer, and office was therefore not abolished by adoption of Metropolitan Charter. *Glasgow v. Fox,* 214 Tenn. 656, 383 S.W. 2d 9 (1964).

Sec. 16.01. County judge.

Nothing in this Charter is intended or shall be construed to alter or affect the judicial powers and functions of the county judge and the same shall continue as provided by general law or private act. The compensation of the county judge shall be as provided by general law with respect to chancellors; provided, that this section shall not alter or diminish the compensation of the incumbent county judge prior to the expiration of his or her present term of office in 1966. The county judge is hereby recognized as an officer of the metropolitan government in the exercise of his or her judicial functions, having the same relationship to such metropolitan government in the performance of such judicial functions as he or she previously had to the County of Davidson. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 16.02. County court clerk.

Nothing in this Charter is intended or shall be construed to alter or affect the powers, duties and responsibilities of the county court clerk as a collector of state revenues or as the clerk of the probate court. All fees, commissions, emoluments and perquisites of the office of county court clerk shall accrue to the metropolitan government as has been provided in section 8.118 of this Charter.

Annotation—Merchants' ad valorem tax is a local tax, and assignment by this Charter of duties of assessment and collection of such tax does not abridge duties of county clerk as collector of state revenues. *Winter v. Allen,* 212 Tenn. 84, 367 S.W. 2d 785 (1963).

Sec. 16.03. Duties of metropolitan government to certain state and county officers recognized.

Nothing in this Charter is intended or shall be construed to affect the powers, duties or compensation of the district attorney, circuit court clerk, criminal court clerk, clerk and master of the chancery court or county register, except as set forth in this section. The metropolitan government and its council shall have the same relationship, including powers, duties and responsibilities, to said officers and their assistants and office personnel as the County of Davidson and its quarterly county court had prior to the effective date of this Charter. It being recognized that this Charter as to metropolitan courts may operate to reduce the fees of the office of criminal court clerk, the metropolitan council is hereby authorized and directed to appropriate for the maintenance of such office such sum of money as may be necessary in addition to statutory fees for the proper operation of said office and for the maintenance of his or her salary at the present (maximum) level. Whenever by general law or private act the County of Davidson has been authorized or required to appropriate money, to contribute toward the compensation of expenses of said officers or their offices, or to perform other

duties with respect thereto, the metropolitan government shall be vested with the same authority and obligation. Said officers and their official personnel shall also have the same relationship, including powers, duties and responsibilities with respect to the metropolitan government as they previously had to the County of Davidson or the City of Nashville. All fees, commissions, emoluments and perquisites of any or said offices shall accrue to the metropolitan government as the same formerly accrued to the County of Davidson.

The metropolitan government shall also have the same obligations and duties as the County of Davidson formerly had with respect to compensation or expenses of court officers, bailiffs, secretaries and all other persons, and such duties may hereafter be changed by amendment or repeal of the respective private acts creating such duties when the amendatory or repealing act has been approved by the electorate or the council, as provided by the Constitution of Tennessee. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 16.04. Reserved.

Editor's note—Section 16.04, relating to the composition, powers and functions of the quarterly county court, was repealed at an election held Aug. 4, 1983.

Sec. 16.05. Sheriff.

The sheriff, elected as provided by the Constitution of Tennessee, is hereby recognized as an officer of the metropolitan government. He or she shall have such duties as are prescribed by Tennessee Code Annotated, section 8-8-201, or by other provisions of general law; except, that within the area of the metropolitan government the sheriff shall not be the principal conservator of peace. The function as principal conservator of peace is hereby transferred and assigned to the metropolitan chief of police, provided for by article 8, chapter 2 of this Charter. The sheriff shall have custody and control of the metropolitan jail and of the metropolitan workhouse. The council may by ordinance authorize the sheriff to provide security within buildings of the metropolitan government and, pursuant to a written agreement between the metropolitan government and a metropolitan agency or authority or judges of the Davidson County Circuit, Chancery, Criminal or General Sessions courts, within any building or at any official meeting of such agency or authority or within any courtroom while such court is in session. The council may by ordinance, upon recommendation of the metropolitan chief of police and sheriff, authorize the sheriff to perform duties as may be unassigned by the charter, or currently assigned to the metropolitan chief of police, relating to the intake, processing, identification and questioning of arrestees, detainees, prisoners and other persons in official custody. (Res. No. RS2012-277, § 1(Amdt. 3), 9-18-2012, election of 11-6-2012; Res. No. 88-526, § 30, 10-4-88; amended by referendum election of November 6, 2018, Amdt. 6)

ARTICLE 17. PUBLIC UTILITY FRANCHISES

Sec. 17.01. Irrevocable franchises granted only by ordinance.

All irrevocable public utility franchises and all renewals, extensions and amendments thereof shall be granted only by ordinance. No such ordinance shall be adopted before thirty (30) days after application therefor has been filed with the council, nor until full public hearing has been held thereon.

Sec. 17.02. Granting ordinances to be ratified at election.

No such ordinance shall become effective until it has been submitted to the electors of the metropolitan government and has been approved by three-fifths of the electors voting thereon. No such ordinance shall be submitted to the electors at an election to be held less than sixty (60) days after the grantee named therein has filed its unconditional acceptance of such franchise, and it shall not be submitted to a special election unless the expense of holding the election, as determined by the council, shall have been paid to the metropolitan treasurer by the grantee.

In any election held under the provisions of this article, wherein is submitted any franchise ordinance for ratification by the voters, it shall not be necessary to print the entire ordinance on the ballot. It shall only be necessary to submit the question of ratification of such ordinance, together with a brief statement of the purpose or purposes of the same, and the date of its enactment by the mayor and council. The ordinance itself may provide for the form of its submission on the ballot.

Sec. 17.03. Restrictions on all future public utility franchises and reserved powers of metropolitan government.

No exclusive franchise shall ever be granted and no franchise shall be granted for a longer term than thirty (30) years. No such franchise shall be transferable, directly or indirectly, except with the approval of the council expressed by ordinance.

All public utility franchises, whether it be so provided in the ordinance or not, shall be subject to the right of the metropolitan government:

1. To repeal the same for misuse or nonuse, or for failure to comply therewith.

2. To require proper and adequate extension of plant and service and the maintenance thereof, at the highest practicable standard of efficiency.

3. To establish reasonable standards of service and quality of products, and prevent unjust discrimination in service or rates.

4. To make independent audit and examination of accounts at any time, and to require reports annually.

5. To require continuous and uninterrupted service to the public in accordance with the terms of the franchise, throughout the entire period thereof.

6. To impose such other regulations as may be determined by the council to be conducive to the safety, welfare and accommodation of the public.

Sec. 17.04. General requirements.

All public utility franchises shall make provision for fixing rates, fares and charges, and for readjustments thereof at periodic intervals of not more than five (5) years, either by arbitration upon terms to be specifically set forth in the franchise, or by state agency, at the election of the metropolitan government. The value of the property of the utility used as a basis for fixing such rates, fares and charges shall in no event include a value predicated upon the franchise, good will or prospective profits.

Every public utility may be required by the metropolitan government to permit joint use of its property and appurtenances located in the streets, alleys, and public places of the metropolitan government, by other public utilities, in so far as such joint use may be reasonably practicable, and in accordance with the provisions of the National Electrical Safety Code upon payment of reasonable rental therefor; provided, that in the absence of agreement, upon application by any public utility, the council shall provide for arbitration of the terms and conditions of such joint use and the compensation to be paid therefor, which award shall be final.

The right to use, control and regulate use of its streets, alleys, bridges and public places, and spaces above and beneath them, is hereby reserved to the metropolitan government, and every public utility franchise shall be subject thereto. Every public utility shall indemnify the metropolitan government against and pay for such damage as it causes to streets, alleys, bridges and other public places by reason of excavations, cutting of pavements, construction work and the like, provided this obligation shall not obligate the public utility to pay for damages resulting from usual wear and tear or its ordinary use of such public places.

Sec. 17.05. Acquiring property of public utility by condemnation.

The metropolitan government shall have power to acquire by condemnation or otherwise the property of any public utility. This power shall be exercised in accordance with the general laws of the state pertaining to such acquisition by cities and may be exercised only after having been approved by three-fifths of the electors voting thereon under the procedure required by section 17.02 hereof in the case of franchises. The cost of such election shall be borne by the metropolitan government.

Sec. 17.06. Recognition of franchises granted by county or city.

This Charter and this article shall not affect valid franchises heretofore granted or transfers thereof heretofore approved by the County of Davidson or the City of Nashville, but the same shall continue in force and effect in accordance with their valid provisions, terms and conditions.

Sec. 17.07. Regulation of street railway companies.

The entire and complete supervision, regulation, jurisdiction and control over street railway companies operating within the territory embraced in the metropolitan government and the environs thereof shall be vested solely in and exercised solely by Nashville Transit Authority as created and established under the terms and provisions of chapter 487, Private Acts of 1953, as amended by chapter 307, Private Acts of 1955, and chapter 165, Private Acts of 1957, and as set forth in Appendix Four hereto to which reference is made. Neither the mayor nor the council nor any other officer or agency of the metropolitan government shall have or exercise any authority whatsoever over such street railway companies, or over Nashville Transit Authority except as expressly provided in said Appendix Four.

No franchise to operate a street railway company on the streets and highways of the metropolitan government shall be granted except upon referendum as hereinabove set forth and nothing in said Appendix Four shall be construed as depriving the citizens of the metropolitan government of the right to grant franchises by referendum through the procedure herein established.

Sec. 17.08. Limited scope of article.

Nothing in this article shall empower any agency of the metropolitan government to regulate rates, charges

and services of any public utility whose rates, charges and services are regulated by the Tennessee Public Service Commission.

ARTICLE 18. MISCELLANEOUS PROVISIONS

Sec. 18.01. Metropolitan clerk.

There is hereby created and established the office of metropolitan clerk, which shall be charged with the recording and safekeeping of minutes, resolutions and ordinances of the metropolitan council and of all other documents relating to official actions of the metropolitan government. The metropolitan clerk shall also perform such other duties as may be imposed upon him or her by this Charter or by ordinance. The metropolitan clerk shall act under the supervision and control of the mayor and council.

Any vacancy in the office of metropolitan clerk shall be filled by the appointment of the mayor, subject to the confirmation by the metropolitan council, pursuant to the civil service provisions of this Charter. Such clerk shall have been a resident of the area of the metropolitan government for at least five (5) years preceding the clerk's appointment. The clerk's office shall be a civil service office and compensation shall be fixed in the metropolitan pay plan provided for by article 12. The clerk shall have such clerical help as may be provided by ordinance. (Amended by referendum election of November 6, 2018, Amdt. 6)

Editor's note—An amendment to the second paragraph of this section, requiring council confirmation of the appointment of the clerk by the mayor, was approved at an election held Aug. 4, 1983.

Sec. 18.02. Enactment, revisions, modification or changes of zoning regulations.

Zoning regulations shall be enacted by the council only on the basis of a comprehensive plan prepared by the metropolitan planning commission in accordance with the applicable state laws and as provided in section 3.05 of this Charter.

Any revision, modification or change in the zoning regulations of the metropolitan government as provided in this section shall be made only by ordinance. Where a proposed ordinance revises, modifies, or changes the zoning regulations and is not accompanied at introduction by a favorable recommendation of the metropolitan planning commission, a copy thereof shall be promptly furnished by the metropolitan clerk to said planning commission, and the same shall not be passed on second reading until the recommendation of said planning commission with respect to the proposal has been received or thirty (30) days have elapsed without such recommendation. No ordinance making any revision, modification or change in the zoning regulations which has been disapproved by the metropolitan planning commission shall be finally passed or become effective unless it shall be adopted by a two-thirds majority of the whole membership of the council and also then be approved by the metropolitan mayor, with a three-fourths majority of the whole membership of the council required to override a veto.

Sec. 18.03. Board of zoning appeals.

A metropolitan board of zoning appeals may be established as provided by state law and ordinance enacted by the council in accordance with the provisions of this Charter. No member of said board of zoning appeals shall hold any public office or position nor shall any member receive any financial compensation for serving on said board.

Sec. 18.04. Nashville Housing Authority.

The Nashville Housing Authority, created pursuant to section 13-20-401 to section 13-20-418, inclusive, of Tennessee Code Annotated, is hereby recognized as existing and functioning within the area of the metropolitan government and as having the same relationship to the metropolitan government as said Nashville Housing Authority previously had to the City of Nashville. Said housing authority is hereby declared to be a city housing authority as provided for by Tennessee Code Annotated, sections 13-20-401 to 13-20-418, inclusive, and also as a county housing authority as provided for by Tennessee Code Annotated sections 13-20-501 to 13-20-511, inclusive. The metropolitan mayor shall be deemed a mayor for the purposes of said city housing authorities act as therein referred to. He or she shall have authority to designate and appoint, subject to confirmation by the council, members of the board of commissioners of The Nashville Housing Authority of the metropolitan government as their terms expire or as their offices otherwise become vacant. (Res. No. 88-526, §§ 31-33, 10-4-88; amended by referendum election of November 6, 2018, Amdt. 6)

State law reference—Tennessee Housing Development Agency Act, T.C.A. § 13-23-101 et seq.

Sec. 18.05. Change in salary of metropolitan officers.

The salary or compensation of the public defender and of administrative and professional officers or employees, including the mayor, councilmembers and other elected officials whose salary or compensation is fixed by this Charter, may be changed by the metropolitan council and established as part of the general pay plan as

provided for by section 12.10 of this Charter. Provided, however, that the salaries of elected officials shall not be increased or diminished during the period for which they shall have been elected. (Amended by Res. No. 66-1053, § 1, 8-16-66; Substitute Res. No. 78-1051, 9-19-78; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 18.06. Redistricting of councilmanic districts.

Redistricting of the councilmanic districts set forth in Appendix Two of this Charter may be accomplished in the following manner:

Within six (6) months after the decennial census of 1970 and each one thereafter is published by the United States Census Bureau showing the population in the area of the metropolitan government, it shall be the duty of the planning commission to recommend to the council whether redistricting of the councilmanic districts is necessary to prevent substantial underrepresentation of particular areas as the result of population changes. If the planning commission shall recommend that redistricting is necessary, it shall also submit a proposed ordinance designed to accomplish its recommendation. Such ordinance shall also revise the school districts to the extent, if any, that may be deemed necessary. The council shall not amend, but may adopt without change such proposed ordinance. Upon approval thereof by the mayor, or passage over his or her veto, redistricting shall be accomplished and district councilmembers shall be elected accordingly at the next general metropolitan election.

The council may reject the proposed ordinance for redistricting, in which event, by resolution under article 19 of this Charter, it shall submit to the people for approval at a special referendum election to be held within ninety (90) days an amendment to this Charter making effective the redistricting as recommended by the planning commission. At such referendum election the council may submit to the people its own plan for redistricting as an alternative to the proposal of the planning commission also submitted.

At the expiration of ninety (90) days subsequent to the receipt by the council of an ordinance of redistricting, as hereinabove provided, if such ordinance shall not have become effective and if the council shall have failed to submit the same to a special referendum election, then the members of the council shall not receive any further salaries until they take one action or the other. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 18.07. Titles and subtitles not part of Charter.

It is hereby expressly declared and recognized that the titles and subtitles appearing before the articles, chapters and sections of this Charter are not part hereof and are not intended to determine or to restrict the meaning of its provisions. No substantive provision of this Charter shall be construed to be unintended or ineffective because the same has not been suggested or indicated by a title or subtitle. Titles and subtitles have been placed in this Charter merely for the convenience of those who examine or index its provisions.

Sec. 18.08. Regulation and sale of alcoholic beverages not affected by Charter.

The creation and establishment of the Metropolitan Government of Nashville and Davidson County shall not alter the status of said county as to the legality of the manufacture, receipt, sale, storage, transportation, distribution and possession of alcoholic beverages. The local option election heretofore held in said county pursuant to Tennessee Code Annotated, sections 57-3-106 and 57-3-107 shall continue to control until the status shall be subsequently altered by a local option election held pursuant to law. The urban services district, but not the general services district, shall be deemed a municipality within the meaning of section 57-3-106.

The council shall have power and authority (a) for the general services district to regulate and tax the manufacture, distribution and sale of beer and other alcoholic beverages of less than five (5) percent to the same extent that governing bodies of counties now possess, or may hereafter possess, such power and authority, and (b) for the urban services district to regulate and tax the manufacture, distribution and sale of beer and other alcoholic beverages of less than five (5) percent and also the manufacture, receipt, sale, storage, transportation, distribution and possession of other alcoholic beverages to the same extent that governing bodies of cities now possess or may hereafter possess such power and authority. (Res. No. 88-526, §§ 34, 35, 10-4-88)

Sec. 18.09. Federal, state and other aid.

The Metropolitan Government of Nashville and Davidson County shall be deemed a county and shall also be deemed an incorporated city or municipality for the purpose of determining its right to receive, and for the purpose of receiving, state aid or grant-in-aid from the State of Tennessee or from the United States or from any other agency. Said metropolitan government shall be entitled to receive as state aid or as grant-in-aid from the

State of Tennessee or from the United States or from any other agency, public or private, all funds to which a county is, or may hereafter be, entitled and also all funds to which an incorporated city or municipality is or may be hereafter entitled and to receive the same without diminution or loss by reason of consolidation. When state aid or other grant-in-aid is distributed to any county on the basis of population or area, or both, then the entire population and the total area of the county in which such metropolitan government is established shall be considered in calculating and determining the basis for such distribution. When state aid or other grant-in-aid is distributed to any county on the basis of rural area, rural road mileage or rural population, or any combination thereof, then that area of the general services district outside of the urban services district shall be deemed to constitute rural area, its road mileage to constitute rural road mileage and its population to constitute rural population. When state aid or other grant-in-aid is distributed to any incorporated city or municipality on the basis of population or area, or both, then the population and the area of the urban services district shall be deemed the population and the area of the metropolitan government in calculating and determining the basis of such distribution.

Sec. 18.10. Metropolitan agencies authorized to compel attendance of witnesses and production of documents.

The council, the civil service commission, the board of education and every other officer and agency of the metropolitan government authorized to conduct investigations or to hold hearings shall have power to compel the attendance of witnesses and the production of books, papers and records pertinent to the investigation or hearing, and to administer oaths to witnesses. If any person fails or refuses to obey a reasonable order for attendance or reasonable order for the production of books and papers, the council, board or other agency is authorized to apply to the chancery court for an order requiring that the order of the council, board or other agency be obeyed.

Sec. 18.11. Authorization to council with respect to certain special appropriations.

The council is hereby authorized to include in the annual operating budget for the general services district the following:

(a) A sum not in excess of twelve thousand five hundred dollars ($12,500.00) for any year for the use of Nashville Humane Association.

(b) A sum not in excess of twenty-five thousand dollars ($25,000.00) for any year for the use of Nashville Children's Museum, of Nashville, Tennessee.

(c) The sum necessary for the purpose of paying dues or assessments of the metropolitan government for the cost of operating the following organizations and similar nonprofit organizations: The Tennessee Municipal League, Tennessee County Services Association, the National Institute of Municipal Law Officers and the Southern Building Code Congress.

(d) A sum not in excess of fifteen thousand dollars ($15,000.00) for any year for the use of the Nashville Symphony Association of Nashville, Tennessee.

Sec. 18.12. No appropriation authorized from budget of general services district to finance certain deficits.

Where any appropriation is made from time to time to finance any deficit in the pension or retirement funds of the former City of Nashville, the same shall be made solely from the budget of the urban services district.

Sec. 18.13. Councilmembers disqualified for membership on certain boards and commissions.

Except as otherwise expressly provided in this Charter, no member of the council shall be eligible during the term of office for which he or she was elected to serve on any metropolitan board or commission created by this Charter. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 18.14. Fidelity bonds.

Before entering upon the duties of their respective offices or positions, the director of finance, the metropolitan treasurer, the collections officer, the chief accountant, the director of personnel, the purchasing agent and such other officers and employees of the metropolitan government as shall be required by council resolution upon the recommendation of the mayor, shall execute corporate surety bonds and file said bonds with the metropolitan clerk. The sum of the individual bonds shall be fixed by the council resolution, but the amount of the bond shall not in any case be less than one thousand dollars ($1,000.00). The bond premiums shall be paid from the general fund of the general services district. All such bonds and sureties thereon shall be approved by the department of law before being accepted by the metropolitan clerk.

Sec. 18.15. Status of smaller cities and voluntary surrender of their charters; creation of suburban utility districts.

Any city in Davidson County not abolished by this Charter shall continue to exist and to function the same as prior to adoption of this Charter; except, that no such city shall extend its boundaries by annexation of any area of the metropolitan government. Any such smaller city may contract with the metropolitan government for the administration and handling of any of its governmental functions by the metropolitan government; and such smaller city may surrender its Municipal Charter at any time pursuant to Tennessee Code Annotated, section 7-1-106, with the approval of a majority of those voting in the smaller city at an election with respect to such matter. After surrender of Charter, the status of the smaller city in the metropolitan government shall be that prescribed in a resolution adopted by the council prior to such surrender, or otherwise the status shall be that of other areas outside the urban services district at the time of dissolution.

It shall be the obligation of the metropolitan government to furnish smaller cities with governmental services so that such cities will be furnished with governmental services to no lesser extent than other areas outside the urban services district. In furnishing said services, the metropolitan government may take into consideration the governmental services available to the smaller city by the use of state aid and other distributable moneys not derived from local taxation by the smaller city; and in this respect the metropolitan government may contract with the smaller city as to the handling, use and expenditure of such moneys.

After the adoption of this Charter by vote of the people, no city shall be created in the area of the metropolitan government, and there shall exist in such area as municipalities only the urban services district and smaller cities existing prior to the adoption of this Charter.

Nothing in this Charter shall be deemed to prevent the creation of utility districts as provided for by Tennessee Code Annotated, section 7-82-101, et seq., with the county judge to perform the function ascribed to such officer by said statute. (Res. No. 88-526, §§ 36, 37, 10-4-88)

Sec. 18.16. County executive committees for political parties.

For the purpose of selecting members of a county executive committee for a political party, as prescribed by any valid Private Act heretofore enacted affecting Davidson County, the thirty-five (35) councilmanic districts created and established by section 3.01 of this Charter shall be deemed to be the city wards and also the county districts from which district representatives on a county political executive committee shall be selected. The total of seventy (70) representatives shall consist of one (1) man and one (1) woman from each of the thirty-five (35) districts. Nothing in this section shall terminate or abridge the terms of office of members now serving on any county political executive committee, and except as expressly modified by this section, any Private Act with respect to this subject matter is continued in force and effect.

Sec. 18.17. Authority to deal with state and federal agencies as to specific governmental services.

The mayor and council of the metropolitan government shall have the power and authority to participate in, cooperate in and take all necessary action with respect to any and all projects, programs and undertakings of any nature whatsoever authorized by any statute, rule or regulation of the United States or the State of Tennessee, or any federal or state agency or instrumentality, including, but not limited to, urban renewal, highways, aviation, aviation terminals, airports, airport facilities, river development or river terminals, municipal area or regional development, schools, colleges or any other area of education, sewers and sewage disposal, public housing, housing for the aged, and transportation or mass transit or any phase thereof, to exercise with respect thereto all the powers conferred by section 7-36-102 of Tennessee Code Annotated [Repealed]* and any other state or federal statute, to borrow money and issue promissory notes, general obligation bonds, or revenue bonds, or a combination thereof, for any such purposes, and to execute mortgages or deeds of trust in favor of any federal agency, secured by property of which the metropolitan government is the legal, or beneficial or equitable owner, or in favor of any private agency where the loan is guaranteed by a federal agency. (Res. No. 88-526, § 38, 10-4-88)

***Editor's note—**The relevant Code sections are codified at T.C.A. 7-3-301 and 9-21-101 et seq.

ARTICLE 19. AMENDING CHARTER*

Sec. 19.01. Amending the Charter.

This Charter may be amended by (a) adoption of a resolution by the council or (b) petition meeting the

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*Editor's note—Res. No. RS2022-1475, § 1(Amdt. 1), adopted May 5, 2022, referendum election of August 4, 2022, repealed the former Art. 19, §§ 19.01—19.03, and enacted a new Art. 19 as set out herein. The former Art. 19 pertained to similar subject matter derived from Res. No. 72-380, § 1, 11-7-72; Amdt., election of 3-8-1988; Amdt. 6, election of 11-6-2018.

requirements of section 19.03, where such resolution or petition has been approved by referendum election conducted pursuant to section 19.04. Amendments may also be adopted in such other manner as may be provided by general law for amending the Charter of a metropolitan government. (Res. No. RS2022-1475, § 1(Amdt. 1), 5-5-2022, election of 8-4-2022)

Sec. 19.02. Amendment by council resolution.

(a) The council may initiate amendments to this Charter by resolution, which for each amendment shall contain (1) the title of the proposed amendment; (2) an explanatory summary of the proposed amendment not to exceed two hundred (200) words; (3) the text of the proposed amendment; and (4) a statement of the financial impact of the proposed amendment. A proposed amendment cannot contain more than one subject as determined using the standard provided in Article 2, Section 17 of the Tennessee Constitution. A proposed amendment cannot be identical or substantially similar to a proposed amendment rejected by the voters of Nashville-Davidson County at an election held within two (2) years before the resolution was filed.

(b) Prior to adopting such resolution, the council shall submit the resolution to the charter revision commission for review. No later than thirty (30) days after receipt of the resolution, the Commission, acting in an advisory capacity, shall provide the council its report and recommendations on the resolution, including whether the proposed amendment satisfies the requirements in this Charter, including Section 19.03(c) for certification of a petition.

(c) A resolution to amend this Charter must receive an affirmative vote for adoption by not less than two-thirds of the membership to which the council is entitled. Such resolution when adopted need not be submitted to the mayor for approval.

(d) The council shall not adopt a resolution proposing amendments to this Charter more often than twice during the term of office of members of said council.

(e) The council shall not adopt, except pursuant to section 18.06 of this Charter, a resolution which proposes an amendment that redistricts the councilmanic districts unless the same be incidental to a proposed change in the number of such districts. (Res. No. RS2022-1475, § 1(Amdt. 1), 5-5-2022, election of 8-4-2022)

Sec. 19.03. Amendment by petition.

(a) The registered voters of Nashville-Davidson County may initiate an amendment to this Charter by petition. No more than one referendum initiated by petition to amend the Charter shall be placed on a ballot within any two-year period.

(b) Before a petition may be circulated, at least one registered voter of Nashville-Davidson County shall file the petition with the metropolitan clerk: (1) the title of the proposed amendment; (2) an explanatory summary of the proposed amendment not to exceed two hundred (200) words; (3) the text of the proposed amendment; and (4) a statement of the financial impact of the proposed amendment.

(c) The charter revision commission shall certify whether the petition satisfied the requirements of this Section 19.03(c) within thirty (30) days after the filing of the documentation required by Section 19.03(b). The petition shall not be certified if: (1) controlling legal authority establishes that the proposed amendment is unconstitutional; (2) the proposed amendment facially conflicts with or is inconsistent with federal or state law; (3) the substance of the proposed amendment is not subject to a referendum under state law or this Charter; (4) the proposed amendment fails to convey a reasonable certainty of meaning; (5) the proposed amendment contains more than one subject as determined using the standard provided in Article 2, Section 17 of the Tennessee Constitution; (6) the subject of the proposed amendment is not clearly expressed in its title; or (7) the petition or amendment fails to satisfy other requirements under this Charter or the Metropolitan Code.

The individual or individuals filing the petition shall have fifteen (15) days to cure any defects in the petition or amendment identified by the charter revision commission by filing the revised petition in proper form with the metropolitan clerk. The commission shall determine within fifteen (15) days whether or not to certify the revised petition.

(d) A decision by the charter revision commission to certify or not certify a petition may be appealed to the Chancery Court for Davidson County upon the filing by any affected party of petition for common-law writ of certiorari within thirty (30) days after the decision of the charter revision commission.

If no timely action has been filed challenging its decision to certify a petition, the charter revision commission shall notify the individual or individuals filing the petition and file the petition with the metropolitan clerk, at which time the petition may be circulated for signatures.

(e) Petitions shall be signed by at least ten percent (10%) of those registered to vote in Nashville-Davidson County as of the date on which the charter revision commission files the certification of the petition with the metropolitan clerk. The disqualification of one (1) or more signatures shall not render a petition invalid, but shall disqualify such signatures from being counted towards the minimum number of signatures required.

Each petition shall contain only the following: (1) the petition language certified by the charter revision commission; (2) the genuine signature and address of registered voters; (3) the printed name of each signatory; and (4) the date of signature.

Completed petitions shall be filed with the metropolitan clerk within ninety (90) days after the charter revision commission files the certification of the petition with the metropolitan clerk. The filing of any legal action regarding the petition after the certification has been filed with the metropolitan clerk shall not extend this deadline.

(f) The metropolitan clerk shall immediately deliver the completed petitions to the Davidson County Election Commission. The Davidson County Election Commission shall verify: (1) the genuine signature; (2) that the current address matches the voter's registered address; (3) the printed name; and (4) that the date of signature of each person who signed the petition is after the charter revision commission's certification to the metropolitan clerk; and (5) that each person who signed the petition is a current registered voter of Nashville-Davidson County. The commission shall not verify or count signatures appearing on petitions that do not strictly conform to the petition language certified by the charter revision commission.

Within thirty (30) days after receiving the completed petitions from the metropolitan clerk, the Davidson County Election Commission shall publicly certify the number of current registered voters of Nashville-Davidson County who signed the petition. The Commission shall file with the metropolitan clerk a written certification of the number of eligible registered voters of Nashville-Davidson County who signed the petitions. The signed petitions shall remain in the custody of the Davidson County Election Commission and shall be deemed to be county public records available for inspection or copying by any interested party in accordance with applicable laws.

The Davidson County Election Commission's action on the petitions may be appealed to the Chancery Court for Davidson County upon the filing by any affected party of a petition for common-law writ of certiorari within thirty (30) days after the Davidson County Election Commission files its certification with the metropolitan clerk. (Res. No. RS2022-1475, § 1(Amdt. 1), 5-5-2022, election of 8-4-2022)

Sec. 19.04. Referendum election.

(a) Any referendum on amending the Charter that complies with the requirements in Section 19.02 or 19.03 shall be placed on the ballot for the next regularly scheduled August or November metropolitan, county, or state general election occurring more than ninety (90) days after the Davidson County Election Commission's certification of the signatures.

(b) The Davidson County Election Commission shall prepare the referendum ballot in strict compliance with this Charter, applicable ordinances, and the charter revision commission's requirements governing the form and content of the ballot. The Davidson County Election Commission shall not alter the wording or substance of the language described in section 19.03(b) as approved by the charter revision commission except as such alteration is approved by the charter revision commission. The Davidson County Election Commission shall file the referendum ballot with the metropolitan clerk at least seven (7) days before such ballot is finalized for review by the charter revision commission.

The ballot shall include the explanatory summary of the proposed amendment approved by the charter revision commission. The ballot shall provide the voters a choice to vote "For Ratification" and "Against Ratification" of each proposed amendment. To assure that the public is fully apprised of the proposed amendment, the Davidson County Election Commission shall post the text of the proposed amendment in a conspicuous place in each polling place and shall publish the proposed amendment on its website and in print in a newspaper of general circulation within Davidson County and digital media. The notice of the referendum and the form of the question and its place on the ballot shall comply with the state laws governing the form of ballots and the arrangement of material on the ballot. The cost of the referendum shall be paid out of the general funds of the Metropolitan Government.

(c) Each proposed amendment shall be ratified when a majority of the votes cast at the referendum election shall be in favor of ratification and shall be rejected when a majority of said votes is not cast in favor. The Davidson County Election Commission shall canvass the returns and certify the results to the Secretary of State, who shall issue a proclamation showing the results of the referendum on the ratification or rejection of the proposed amendment to this Charter. One copy of the proclamation shall be attached to the copy of this Charter previously certified to the Secretary of State and one copy shall be delivered to the metropolitan clerk who shall attach the same to the copy of the Charter in his or her custody. (Res. No. RS2022-1475, § 1(Amdt. 1), 5-5-2022, election of 8-4-2022)

Sec. 19.05. Charter revision commission authorized.

(a) There is hereby created and established a metropolitan charter revision commission. The commission shall consist of seven (7) members who shall serve

without compensation. The members of the commission shall be appointed by the mayor and confirmed by a majority vote of the whole membership of the council. The seven (7) members shall serve terms of four (4) years each. Members serving when this provision is adopted shall continue to serve through the end of their terms.

(b) The commission shall have the following powers and duties: (1) to make recommendations to the council with respect to amendments to the Charter; (2) to prescribe and oversee the form, facial validity, preparation and circulation of petitions to amend the Charter; and (3) approve the form of referendum ballots to amend the Charter to enable the public to vote either in favor of or against a proposed Charter amendment in an informed way. In exercising these powers and duties, the commission shall have the authority to hold hearings, compel the attendance of witnesses and the production of books, papers, and records pertinent to the hearing, and administer oaths to witnesses. If any person fails or refuses to obey a reasonable order for attendance or reasonable order for production of books and papers, the commission may apply to chancery court for an order requiring the order of the commission to be obeyed. The charter revision commission shall adopt and prescribe standard forms and procedures governing petitions to amend this Charter consistent with this Article, the council's ordinances, and other applicable legal requirements. (Res. No. RS2022-1475, § 1(Amdt. 1), 5-5-2022, election of 8-4-2022)

Sec. 19.06. Implementation and strict construction.

The council shall adopt as necessary any ordinance to implement this Article consistent with this Charter and other applicable legal requirements. This Article, ordinances and procedures implementing this Article, and other applicable legal requirements for referendums to amend the Charter of the metropolitan government shall be strictly construed. Those seeking to initiate amendments by resolution or petition must strictly comply with these requirements. (Res. No. RS2022-1475, § 1(Amdt. 1), 5-5-2022, election of 8-4-2022)

ARTICLE 20. TRANSITION AND EFFECTIVE DATE

Sec. 20.01. Certain ordinances and resolutions continued.

All city ordinances, resolutions and by-laws in force in the former City of Nashville, the Charter of which is repealed and abolished by this Charter, shall continue in force and effect, when not inconsistent with the provisions of this Charter, and shall have the legal effect of ordinances of the metropolitan government operative within the urban services district until repealed, modified or amended by subsequent action of the metropolitan government. All resolutions of the quarterly county court of Davidson County and regulations pertaining to said county established by Private Act, when not inconsistent with the provisions of this Charter, shall continue in force and effect and shall have the legal effect of ordinances of the metropolitan government until repealed, modified or amended by subsequent action of the metropolitan government.

Sec. 20.02. Zoning regulations continued.

The creation and establishment of the Metropolitan Government of Nashville and Davidson County shall not alter or change the zoning regulations effective in

Davidson County or the City of Nashville at the time this Charter becomes effective, but the same shall continue in force and effect until amended by the council on the basis of recommendations by the metropolitan planning commission or until revised, modified or changed by the council on the basis of a comprehensive plan prepared by the metropolitan planning commission in accordance with the applicable state laws and as provided by this Charter.

From the date of adoption of this Charter[1] to the effective date as defined in section 20.21 hereof,[2] no change in zoning by action of the City Council of Nashville or of the Quarterly County Court of Davidson County shall affect or alter the zoning to become effective with this Charter, unless such change shall have been recommended by the planning commission or the same shall have received the affirmative vote of three-fourths of said city council or said quarterly county court.

The board of zoning appeals of the City of Nashville and the board of zoning appeals of Davidson County shall continue as constituted and organized at the time of the effective date of this Charter, with their respective powers and duties as provided in the zoning regulations of the City of Nashville and Davidson County as identified in this section. The functioning of said boards of zoning appeals shall be terminated only at such time as the zoning regulations for the metropolitan government area are enacted by the council as provided in section 18.02 of this Charter or at such time as a metropolitan board of zoning appeals may be established pursuant to section 18.03 of this Charter.

1. June 28, 1962.
2. April 1, 1963.

Sec. 20.03. Property rights, contracts, obligations, causes of action and legal proceedings continued.

All rights and titles to property, all rights and obligations under contracts or trusts, and all causes of action of any kind in any court or tribunal vested in the City of Nashville or the County of Davidson or in any officer or employee thereof in his or her official capacity, at the time this Charter becomes effective,[3] as well as all liabilities in contract or tort and causes of action involving the same in so far as they affect the City of Nashville or the County of Davidson or any officer or employee thereof in his or her official capacity which shall be outstanding at the time this Charter becomes effective, shall continue without abatement or modification by reason of any provision of this Charter. (Amended by referendum election of November 6, 2018, Amdt. 6)

3. April 1, 1963.

Sec. 20.04. Proceedings before county and city agencies continued.

All petitions, hearings and other proceedings pending before any agency of the City of Nashville or of the County of Davidson shall continue and remain in full force and effect, notwithstanding that such agency may have been abolished or consolidated by this Charter; and the petition, hearing or proceeding may be completed by the agency of the metropolitan government which succeeds to the rights, powers, duties and obligations of such abolished or consolidated agency. The word "agency," as used herein and in sections 20.05, 20.06 and 20.07 of this article, is hereby defined to mean and to include officer, office, department, board or commission.

Sec. 20.05. Rules and regulations continued.

All orders, rules and regulations made by any agency of the City of Nashville or of Davidson County, which is abolished or consolidated by this Charter, shall remain in full force and effect until revoked or modified by the agency which succeeds to the rights, powers, duties and obligations of such abolished or consolidated agency.

Sec. 20.06. Employees and their civil service status continued.

Where an existing agency of the City of Nashville or of Davidson County is abolished or consolidated by this Charter, all employees thereof shall continue, as temporary appointees of the agency to which the rights, powers, duties and obligations of such abolished or consolidated agency are transferred, to perform their usual duties upon the same terms and conditions as theretofore until removed, appointed to positions in accordance with this Charter, or transferred to other agencies of the metropolitan government. Where the rights, powers, duties and obligations of any such agency are divided between two or more agencies of the metropolitan government, each of them shall receive such of the employees as have been regularly occupied in connection with the functions thereof which are by this Charter transferred to such agency. Every employee to whom this section applies shall be placed temporarily in one of the agencies of the metropolitan government.

All questions and problems arising under this section shall be determined by the mayor; provided, nothing in his or her determination nor in this Charter shall impair or diminish the rights and privileges of employees of the city or of the county under civil service on the date this

Charter shall be adopted.[4] (Amended by referendum election of November 6, 2018, Amdt. 6)

4. June 28, 1962.

Sec. 20.07. Transfer of records and equipment.

When an agency of the City of Nashville or of Davidson County is abolished or consolidated by this Charter, all books, papers, maps, charts, plans, records, other equipment and personal property in the possession of the same shall be delivered to the agency to which its rights, powers, duties and obligations are transferred. In case of controversy between two (2) or more agencies as to right, such books, papers, other documents, equipment and personal property shall be transferred to such agency as the mayor may direct.

Sec. 20.08. Certain metropolitan officers appointed.

(a) *Metropolitan Clerk.* The person holding the position of city clerk of the former City of Nashville, and having civil service status as such, is hereby appointed and designated as metropolitan clerk provided for by section 18.01 of this Charter, and the certified copy of this Charter and proclamation deposited with the county clerk pursuant to Tennessee Code Annotated, section 7-2-106, delivered to said metropolitan clerk on the effective date of this Charter,[5] to be kept by him or her as a part of the permanent records of his or her office.

5. April 1, 1963.

(b) *Metropolitan Treasurer.* The person holding the position of city treasurer of the City of Nashville on the effective date of this Charter,[6] and having civil service status as such, is hereby appointed and designated as the first metropolitan treasurer.

6. April 1, 1963.

(c) *Chief Medical Director.* The person holding the office of county health officer of Davidson County on the effective date of this Charter[7] is hereby appointed and designated as the first chief medical director of the metropolitan board of health. Any contract of employment entered into between such county health officer and the county board of health of Davidson County prior to the effective date of this Charter for a term of employment as county health officer extending beyond such effective date shall be accepted by the metropolitan board of health and shall have the effect of the employment of the chief medical director, as such, for the unexpired portion of such contract term.

7. April 1, 1963.

(d) *Director of Department of Water and Sewerage Services.* The person holding the position of director of waterworks department of the City of Nashville on the effective date of this Charter,[8] and having civil service status as such, is hereby appointed and designated as the first director of the department of water and sewerage service.

8. April 1, 1963.

(e) *Public Defender.* The person elected as public defender for Davidson County at the August election 1962 is hereby appointed and designated as the first public defender for the metropolitan government.

(f) *Director of Department of Police.* The person holding the position of chief of the police department of the City of Nashville on the effective date of this Charter,[9] and having civil service status as such, is hereby appointed and designated as the first director of the department of metropolitan police.

9. April 1, 1963.

(g) *Director of Department of Fire.* The person holding the position of chief of the fire department of the City of Nashville on the effective date of this Charter,[1] and having civil service status as such, is hereby appointed and designated as the first director of the department of fire.

1. April 1, 1963.

(h) *Budget Officer, Division of Budgets.* The person holding the office of director of accounts and budgets of Davidson County on the effective date of this Charter[2] is hereby appointed and designated as the first budget officer of the division of budgets.

2. April 1, 1963.

(i) *Chief Accountant, Division of Accounts.* The person holding the office of chief accountant of the City of Nashville on the effective date of this Charter,[3] and having civil service status as such is hereby appointed and designated as the first chief accountant of the division of accounts.

3. April 1, 1963.

(j) *Metropolitan Judges.* The judge of the city court and the judge of the traffic court of the former City of Nashville are hereby designated and appointed respectively as the judge of division I and as the judge of division II of the metropolitan court, to serve until their successors are elected at the regular August election in 1964 for the remainder of the judicial term.

(k) *Clerk, Deputy Clerk and Court Officers of Metropolitan Court.* The person holding the position of clerk of the city court in the former City of Nashville on the effective date of this Charter,[4] and having civil service status as such, is hereby appointed and designated

as the first clerk of the metropolitan court. The person holding the position of clerk of the traffic court of the former City of Nashville on the effective date of this Charter, and having civil service status as such is hereby appointed and designated as a deputy clerk to the judge of division II of the metropolitan court.

The members of the police department of the former City of Nashville serving as court officers to the judges of the city court and traffic court of the former City of Nashville on the effective date of this Charter[5] shall retain their positions and status as court officers of the metropolitan court, and if they cease to serve as such court officers, they shall be returned to the metropolitan police department as classified employees thereof.

4. April 1, 1963.

5. April 1, 1963.

(l) *Director of Welfare.* The person holding the position of director of welfare for Davidson County on the effective date of this Charter[6] is hereby appointed and designated as the first director of welfare under the jurisdiction and authority of the metropolitan welfare commission created and provided for by Article 11, chapter 11 of this Charter.

6. April 1, 1963.

(m) *Collections Officer*: The person holding the position of city comptroller of the City of Nashville on the effective date of this Charter[7] and having civil service status as such, is hereby appointed and designated as the first collections officer created and provided for by section 8.107 of this Charter. (Res. No. 88-526, § 9, 10-4-88; amended by referendum election of November 6, 2018, Amdt. 6)

7. April 1, 1963.

Sec. 20.09. Director and assistant director of department of public works.

The person holding the position of director of the department of public works of the City of Nashville on the effective date of this Charter[8] is hereby appointed and designated as the first director of said department created and provided for by section 8.404 of this Charter.

The person holding the position of director of the department of public works of Davidson County on the effective date of this Charter[9] is hereby appointed and designated as assistant director of the metropolitan department of public works. When the office of assistant director becomes vacant, the same shall terminate and not be filled, except as may be provided by ordinance.

8. April 1, 1963.

9. April 1, 1963.

Sec. 20.10. Division of public roads and director thereof.

The former county highway department of Davidson County shall continue to operate and to perform its former road functions as the public roads division of the department of public works and the engineer of said former county highway department shall be the divisional director of said public roads division. The functioning of said division and the designation of its divisional director shall continue until changed by ordinance.

Sec. 20.11. Certain members of county highway patrol and of the park police appointed.

Members of the county highway patrol appointed as such by the sheriff of Davidson County are hereby appointed, and designated as members of the metropolitan police department under the following terms and conditions:

All salaried members of the former county highway patrol who have had not less than three (3) years' experience as members of said patrol upon the effective date of this Charter[1] shall be classified as patrolmen second class in the metropolitan police department and shall be eligible for promotional examinations for available positions in like manner as other patrolmen second class in the metropolitan police department.

All salaried members of the former county highway patrol who are not eligible for classification as patrolmen second class, but who have had not less than six (6) months' experience as members of such patrol upon the effective date of this Charter[2] shall be classified as patrolmen third class in the metropolitan police force. After service for one (1) year as patrolmen third class and upon certification of the director of the department of metropolitan police, with the approval of the mayor and the civil service commission, such persons shall be advance to the position of patrolmen second class in the same manner as other patrolmen second class. Members of the county highway patrol appointed hereunder to positions with the metropolitan police department shall not be eligible for benefits under the police officer's and firemen's pension fund, but shall derive any pension and retirement benefits from the metropolitan employees' retirement fund.

All salaried members of the park police of the former City of Nashville who are members of the same upon the effective date of this Charter[3] and who have civil service status as such shall become custodial personnel of the metropolitan board of parks and recreation. (Amended by referendum election of November 6, 2018, Amdt. 6)

1. April 1, 1963.

2. April 1, 1963.
3. April 1, 1963.

Sec. 20.12. Certain civil service employees transferred to metropolitan department of law.

All civil service employees in the department of law of the former City of Nashville or in the office of county attorney of the former County of Davidson are hereby transferred to, and continued as employees of, the metropolitan department of law.

Sec. 20.13. Appointments to administrative boards and commissions; former boards and commissions continued.

The metropolitan mayor shall appoint promptly and at least within thirty (30) days after he or she shall take office all members of boards and commissions whom this Charter authorizes him or her to appoint. Unless otherwise provided by this Charter, all boards and commissions of the former City of Nashville and of the former County of Davidson are continued for a period of sixty (60) days after the effective date of this Charter or until the board, commission or other agency succeeding to its rights, powers, duties and obligations is organized, whichever date or event occurs earlier. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 20.14. Transitional provisions as to public schools.

(a) *Temporary administration by city and county school boards.* From the effective date of this Charter[4] to and including July 31, 1962, the county and city school boards shall each continue to administer, control and operate the school system previously under its jurisdiction in the same manner that such system was operated prior to the effective date of this Charter. Such operation may include assignment of teachers to schools for the school year 1962-1963, to the extent that such assignment is practicable on or before July 31, with such assignments to be made or completed thereafter by the transitional board of education to the extent that may be necessary. The powers, duties and functions of said separate school boards shall cease and terminate after July 31, 1962.

(b) *Transitional operation by transitional board of education.* From August 1, 1962, until June 30, 1964, the administration, operation and control of the metropolitan school system shall be by and under a transitional board of education, subject to the directives and limitations hereinafter specified. For the purpose of transitional operation, a transitional board of education of nine (9) members is hereby created and constituted as follows:

Three (3) members shall be persons who were members of the Davidson County Board of Education immediately prior to the termination of said board; and said three (3) members shall be chosen by the Davidson County Board of Education prior to August 1, 1962.

Three (3) members shall be persons who were members of the board of education of the City of Nashville immediately prior to the termination of said board; and said three (3) members shall be chosen by the board of education of the City of Nashville prior to August 1, 1962.

The three (3) remaining members shall be Dr. Henry H. Hill, former president, George Peabody College for Teachers, who shall serve as chairman of the transitional board; Dr. Walter S. Davis, president, A. & I. State University, and Mr. E. C. Carman, vice-president, AVCO Corp.

Any vacancies on the transitional board of education resulting from resignation or death of a former Davidson County Board of Education member shall be filled by the two remaining such members, or upon their failure to agree, by all remaining board members.

Any vacancies on the transitional board of education resulting from resignation or death of a former member of the board of education of the City of Nashville shall be filled by the two remaining such members, or upon their failure to agree, by all remaining board members.

Any vacancies in membership resulting from the inability to serve, resignation or death of one of the three (3) members named herein shall be filled by the two remaining such members, or upon their failure to agree, by all remaining board members; provided, that if said vacancy is with respect to the membership of Dr. Walter S. Davis, his successor, as so chosen, shall be either the president or acting president of A. & I. State University or of Fisk University or of Meharry Medical School.

During the transitional period, the board shall operate the two separate school systems herein consolidated in the same manner as the two systems were operated prior to the adoption of this Charter, and with the same powers and authorities as the board of education of the City of Nashville and the Davidson County Board of Education previously acted.

During the transitional period the board shall cause a comprehensive survey to be made of the two school systems, to the end that, not later than July 1, 1964:

(1) A complete consolidation of the physical properties thereof may be effected.

(2) The consolidation of personnel and employees thereof may be effected.

The transitional board shall also (i) seek applications for the position of director of schools and assemble information with respect to the applicants, which applications and information shall be submitted to the metropolitan board of education to the end that its permanent administration may be expedited; and (ii) prepare and submit to the mayor a budget for the scholastic year 1964-1965.

Any fund to the credit of the board of education of the City of Nashville shall be transferred to the credit of the transitional board of education but shall be earmarked and used for the benefit of that portion of the public school system previously operated as city schools. Any fund to the credit of the Davidson County Board of Education shall be transferred to the credit of the transitional board, but shall be earmarked and used for the benefit of that portion of the public school system previously operated as county schools.

During the transitional period the person then holding the position of county superintendent of public instruction by election of the quarterly county court of Davidson County, Tennessee, shall continue to hold such position and to perform and discharge the same duties of that office in connection with that portion of the public school system previously operated as county schools.

During the transitional period that person holding the position of superintendent of the city school system of the City of Nashville shall continue to hold such position and discharge the duties of that office in connection with the school system previously operated as city schools.

The transitional board of education may assign teachers to schools for the school year 1964-1965 to the extent that the same is practicable on or before June 30, 1964, with such assignments, when not made or completely made, to be finished by the permanent metropolitan board of education.

(c) *Operation by permanent board of education.* At least sixty (60) days prior to July 1, 1964, the mayor shall appoint, subject to confirmation by the council as hereinabove provided in section 9.02, the first members of the permanent metropolitan county board of education, which shall assume administration, control and operation of the metropolitan school system.

When the metropolitan board of education fixes the compensation of positions in the school system to be paid after the expiration of the transitional period, consideration shall be given to the varying pay scales and classifications of the former city and of the former county, and whichever pay scale is higher for particular classification shall be adopted as the original rate for such classification in the consolidated metropolitan school system.

At the expiration of the transitional period, the board shall offer professional employment to the person holding the position of county superintendent of public instruction and to the person holding the position of superintendent of schools of Nashville. Such employment shall assure a compensation at least equal to that received by the person as county or city superintendent for period of time not less than the unexpired term of office, and shall assign to the position duties and responsibilities commensurate with those attached to the abolished position.

4. June 28, 1962. See § 20.21.

Sec. 20.15. Transition as to fiscal and related matters.

(a) *Supplemental appropriations during fiscal year ending June 30, 1963.* Supplemental appropriations made by the metropolitan council to any department, board, commission, office or agency of the metropolitan government for the fiscal year ending June 30, 1963, shall be made within the budget structure of the former City of Nashville and former County of Davidson; provided, nothing in this section shall prevent the metropolitan government from borrowing money necessary to finance obligations of said government for said period which may be specifically created by this Charter.

(b) *Budget and tax levy for fiscal year ending June 30, 1963.* The budget and tax levy of the former City of Nashville shall serve s the budget and tax levy for the urban services district for the fiscal year ending June 30, 1963. The budget and tax levy of the former County of Davidson shall serve as the budget and tax levy for the general services district for the fiscal year ending June 30, 1963. Where functions have been transferred from the urban services district to the general services district, or vice versa, the funds appropriated for such purpose shall follow the function.

(c) *Servicing bonded indebtedness during fiscal year ending June 30, 1963.* Debt service with respect to bonds issued by the City of Nashville shall be paid from the sinking funds of said city during the fiscal year ending June 30, 1963; and debt service with respect to bonds issued by the County of Davidson shall be paid from the sinking funds of said county during the same period, and after June 30, 1963, as set forth in article 7, section 7.20.

(d) *Transitional provisions as to tax assessments and assessors.* Effective September 1, 1962, the county tax assessor shall become the metropolitan tax assessor and shall assume the powers, authority and duties of such office as provided in this Charter.

The assessments made by said assessor as of January 10, 1963, shall be and constitute the assessments on the basis of which taxes for said year shall be collected within both the urban services district and the general services district and to which taxes levied by the council for 1963 and thereafter shall apply. Said assessor is hereby designated and constituted the metropolitan tax assessor, and for this purpose the Charter shall take effect September 1, 1962.

On or after September 1, 1962, or as soon thereafter as practicable, all personnel of the office of tax assessor of the former City of Nashville under civil service, except those positions excluded or omitted from civil service under provisions of this charter, shall be and become civil service employees in the office of the metropolitan tax assessor.

(e) *Preparation of transitional forms and procedures.* Following the election of the metropolitan government officials, the mayor elect shall request a meeting of the city finance director, the county director of budgets and accounts, and the executive director of the city and county planning commissions for the purpose of proceeding with the preparation of forms, materials and procedures necessary to the official establishment, fiscal functioning and administrative organization of the metropolitan government. The services, facilities and staff personnel of the city finance department, the city legal department, the county department of accounts and budgets, the county attorney's office, and the planning commission of the city and county shall be made available to assist in these preparations.

(f) *First annual operating budget.* In the preparation of the operating budget for the 1963-1964 fiscal year, the following timetable shall prevail:

(1) By April 15, 1963, the director of finance shall distribute the operating budget request forms for both section I and section II of the annual operating budget. Said forms to be returned on the date set by the director of finance.

(2) Not later than May 28, the mayor shall submit to the council the operating budget ordinances and tax levy ordinances following the form and content specified in section 6.03 as closely as possible within the time available for their preparation.

(3) Public hearings on both the capital improvements budget and program and the annual operating budget shall be held between June 7 and 15, 1963.

(4) Third reading and final action shall be taken on the capital improvements budget and the 1963-1964 annual operating budget not later than June 29, 1963.

(g) *First capital improvements program.* The City of Nashville and Davidson County Planning Commissions, following the November election of metropolitan government officials, shall proceed with gathering the data and information necessary for the preparation of the first capital improvements budget and program based on the allocation of functions between the general services district and the urban services district.

The mayor shall submit the capital improvements budget to the council not later than May 25, 1963.

Sec. 20.16. Transitional provisions as to civil service.

The person holding the position of director of personnel by appointment of the civil service commission of the former City of Nashville on the effective date of this Charter,[5] and having civil service status as such, is hereby appointed and designated as the first director of personnel provided for by section 12.04 of this Charter.

Until the metropolitan civil service commission provided for by section 12.02 of this Charter is organized by election of a chairman, the existing city and county civil service commissions shall continue to function. The existing rules, classification plans and pay plans of the City of Nashville and the County of Davidson shall remain in effect until new rules, a new classification plan and a new pay plan shall have been adopted by the metropolitan civil service commission.

Prior to July 1, 1964, the civil service commission provided for by section 12.02 of this Charter shall be, and shall function as, the civil service commission with respect to nonprofessional personnel employed by the board of health and board of hospitals and nonteaching employees of the board of education.

5. April 1, 1963.

Sec. 20.17. Transitional provisions as to employee benefits.

The person holding the position of director of personnel by appointment of the civil service commission of the former County of Davidson on the effective date of this Charter[6] is hereby appointed and designated as the first secretary of the metropolitan employee benefit board.

Within thirty (30) days from the effective date of this Charter, the director of personnel, with the approval of either the former civil service commissions of the City of Nashville and the County of Davidson or the metropolitan civil service commission, shall announce a

plan for the conduct of an election as provided in section 13.03 to select the employee members of the employee benefit board. Said election shall be held within thirty (30) days from such announcement.

Until the employee benefit board is organized by the election of a chairman, the civil service commission of the former City of Nashville shall continue to administer the police officer's and firemen's pension fund and the civil service employees' pension fund; and the pension commission of the former County of Davidson shall continue to administer the employees' pension and insurance fund, for which purposes both commissions shall continue to function under their respective rules and regulations and exercise all powers formerly vested in them.

The metropolitan government shall have no obligation (except as created by ordinance or resolution of the metropolitan council) for pension or retirement benefits of a person not under civil service in the county or city government on March 31, 1962, (except library employees) and brought under civil service by resolution or ordinance of the county or city governing body subsequent to said date. This provision shall not impair the pension and retirement benefits of any person employed by the county or city on said date and then under civil service or of any person who was in process of coming under civil service on said date by then serving a probationary period.

Where compensation for a metropolitan office is fixed by this Charter, a person holding specified office in the city or county government is appointed thereto by this Charter, and the compensation herein fixed is an increase over the compensation which such county or city officer was entitled to receive as of March 31, 1962, then the obligation of the metropolitan government for retirement benefits to such person shall be based upon the compensation paid him or her by the county or city as of March 31, 1962, until such person shall have served as a metropolitan officer for five (5) years or more. After said five (5) years, such benefits shall be based upon compensation paid by the metropolitan government. (Amended by referendum election of November 6, 2018, Amdt. 6)

6. April 1, 1963.

Sec. 20.18. Transition as to quarterly county court.

The quarterly county court, composed of justices of the peace from civil districts and municipal corporations as prescribed by section 16.04, shall be elected at the next regular August election for justices of the peace, to take office on September 1 following their election. The members of the quarterly county court as constituted prior to this Charter shall continue to serve until the expiration of their terms of office, but after the effective date of this Charter the functions, powers and duties of the quarterly county court shall be as provided by section 16.04 hereof.

Sec. 20.19. Compensation and pension rights of city mayor and city councilmembers preserved.

The mayor and members of the city council of the City of Nashville, whose terms of office are abridged by this Charter to the extent of approximately two (2) months, shall be entitled to receive salaries from the metropolitan government and to be eligible to receive pensions therefrom to the same extent as if they had served for the full term to which elected; provided, that if any of said city officers shall be elected to office at the first election for metropolitan officers, they shall not receive both the salary herein provided and the salary of the metropolitan office to which elected. (Amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 20.20. Special metropolitan election and term of office of persons then elected.

There shall be a special metropolitan election on the first Tuesday after the first Monday in November, 1962, for the purpose of electing the first mayor, the first vice-mayor and forty (40) members of the first metropolitan council, including five (5) councilmembers-at-large and thirty-five (35) district councilmembers. Said special election and a run-off election thereafter to be held twenty-one (21) days later, if necessary, shall be held under the provisions of article 15 of this Charter with respect to metropolitan elections. The metropolitan officers elected at said special election shall take office on the first Monday of April, 1963, and shall serve until the first day of September, 1966, or until their successors are elected and qualified.

The metropolitan officers elected at the general metropolitan election to be held on the fourth Thursday of April, 1966, shall serve until the first day of September, 1971, or until their successors are elected and qualified.

For the purpose of determining the eligibility for a pension of the mayor or mayors elected hereunder in the first and second metropolitan general elections, and for the purpose of section 5.06 of this Charter, the term of the first metropolitan mayor elected and the term of the second metropolitan mayor elected shall be deemed to be terms of four (4) years each. (Amended by Res. No. 65-670, § 1, 7-6-65; amended by referendum election of November 6, 2018, Amdt. 6)

Sec. 20.21. Effective date of Charter.

This Charter shall become effective immediately upon its adoption for purposes of section 18.15, section 20.02, section 20.14 and section 20.15 hereof. This Charter shall become effective for all other purposes on the first Monday in April, 1963, which date is hereby defined and designated as "the effective date of this Charter" within the meaning of such quoted phrase as used in this Charter.

ARTICLE 21. INTENT OF CHARTER AND SEPARABILITY OF PROVISIONS

Sec. 21.01. Generally.

The people residing within the area of the metropolitan government declare and determine that by the adoption of this Charter it is their intent to exercise to the full extent possible the constitutional power granted by Amendment No. 8 to article XI, section 9 of the Constitution of Tennessee approved at an election on November 3, 1953, as implemented by Tennessee Code Annotated, section 7-1-101 et seq., and in so doing to consolidate all or substantially all of the governmental and corporate functions of the County of Davidson and of the City of Nashville, so that, in the interest of modern, efficient and economical government, the same may be operated as one (1) governmental entity. The people further declare that to achieve this remedial objective and to aid in the solution of the public problems of a metropolitan area, it is their purpose and intent in its adoption that this Charter shall continue in full force and effect even if any of its separable provisions or parts not essential to this remedial objective shall be held unconstitutional or void. (Res. No. 88-520, § 40, 10-4-88)

APPENDICES TO CHARTER

Appendix One. Description of Boundaries of Urban Services District

Beginning at a point on the centerline of the Cumberland River, said point being the intersection of the centerline of the Cumberland River with the north property line of Cornelia Fort Air Park extended to the centerline of the Cumberland River; thence downstream with the centerline of the Cumberland River to the extended easterly right-of-way line of the Louisville and Nashville Railroad Radnor Cutoff; thence southwardly with the easterly right-of-way line of the Louisville and Nashville Railroad Company's Radnor Cutoff, extended, and with the easterly right-of-way line of the Louisville and Nashville Railroad Company's Radnor Cutoff to a point on the northerly margin of Lebanon Pike; thence eastwardly with the northerly margin of Lebanon Pike to a point of the easterly margin of Spence Lane, extended; thence southwardly with the easterly margin of Spence Lane, extended, and with the easterly margin of Spence Lane to a point on the northerly margin of Elm Hill Pike; thence eastwardly with the northerly margin of Elm Hill Pike to an extended point on the northeasterly line of Dabbs Avenue; thence southeastwardly with the northerly line of Dabbs Avenue to the east line of McGavock Pike, thence southwardly with the east line of McGavock Pike to the northerly property line of the Nashville Municipal Airport property; thence eastwardly with the meanderings of the northerly property line of the Nashville Municipal Airport property and said line extended to the east line of Donelson Pike; thence southwardly with the east line of Donelson Pike and said line extended to the south line of Murfreesboro Pike; thence westwardly along the south line of Murfreesboro Pike to the east line of McGavock Pike; thence southwardly along the easterly line of McGavock Pike and said line extended to the centerline of Mill Creek, said line extended being the southerly-most north-south tangent of McGavock Pike; thence westwardly downstream along the centerline of Mill Creek to the confluence of Seven Mile Creek; thence upstream with the centerline of Seven Mile Creek to the southerly line of Paragon Mills Road; thence southwestwardly along the southerly line of Paragon Mills Road and said line extended to the west line of Nolensville Pike; thence northwestwardly along the west line of Nolensville Pike to a point intersected by the southerly line of Elysian Fields Road extended; thence westwardly along the southerly line of Elysian Fields Road and said line extended to the easterly line of Trousdale Drive; thence southwardly with the east line of Trousdale Drive to a point intersected by the south line of Sidco Drive extended; thence westwardly with the south line of Sidco Drive extended and Sidco Drive to a point on the easterly corporate limits of the City of Oak Hill; thence northwardly and continuing westwardly and southwardly with the corporate limits of the City of Oak Hill to a point on the common boundary line of the City of Oak Hill and the City of Forest Hills, said point being located on the south line of Tyne Boulevard approximately 500 feet west of Granny White Pike; thence continuing westwardly and northwardly along the corporate limits of the City of Forest Hills to a point in corporate limits of the City of Belle Meade, said point being the northwest intersection of Tyne Boulevard and Lynnwood Boulevard; thence northwardly, westwardly, and southwardly along the corporate limits of the City of Belle Meade to its intersection with the southwestwardly line of Hillwood Boulevard; thence northwestwardly along the southwesterly line of Hillwood Boulevard to the south line of Hickory Valley Road; thence westwardly with the south line of Hickory Valley Road to the west line of Summerly Drive extended; thence northwestwardly with the westerly line of Summerly Drive extended and the westerly line of Summerly Drive to the north line of Charlotte Pike; thence northeastwardly along the north line of Charlotte Pike to a point intersected by the north line of Old Hickory Boulevard; thence northwestwardly along the northerly margin of Old Hickory Boulevard and the northerly margin of Old Hickory Boulevard extended to the centerline of the Cumberland River; thence upstream along the centerline of the Cumberland River to a point intersected by the centerline of Page's Branch extended; thence upstream with the centerline of Page's Branch extended and Page's Branch to the north line of Lock Road; thence eastwardly along the north line of Lock Road to the south line of White's Creek Pike; thence eastwardly across White's Creek Pike to the northwest corner of White's Creek Pike and Weakley Avenue; thence northeastwardly with the west line of Weakley Avenue to the north line of Fern Avenue extended; thence eastwardly with the north line of Fern Avenue extended and the north line of Fern Avenue to the west line of Brick Church Pike; thence northwardly with the west line of Brick Church Pike to a point intersected by the north property line of Shwab School extended; thence eastwardly along the north property line of Shwab School to the west line of Dickerson Pike; thence eastwardly across Dickerson Pike to the intersection of the east line of Dickerson Pike with the north line of Gatewood Avenue; thence eastwardly along the north line of Gatewood Avenue to the west line of Meridian Street; thence northwardly along the west line of Meridian Street to the north line of Edith Avenue extended; thence eastwardly along the north line of Edith Avenue

extended and the north line of Edith Avenue to the west line of Lischey Avenue; thence northwardly along the west line of Lischey Avenue and said line extended to the north line of E. Trinity Lane; thence eastwardly along the north line of E. Trinity Lane to the westerly line of Pittway Drive; thence northwardly along the westerly line of Pittway Drive to its dead end; thence continuing northwardly in a straight line to the southwest corner of the properties of the Middle Tennessee State Tuberculosis Hospital; thence eastwardly along the southerly property line of the said Tuberculosis Hospital property and the southerly-most line of said property extended across the right-of-way of the Louisville and Nashville Railroad to the east line of Coney Street; thence southwardly along the east line of Coney Street to the north line of Maynor Avenue; thence eastwardly along the north line of Maynor Avenue to the east line of Anderson Place extended; thence southwardly along the east line of Anderson Place and said line extended to the north line of Thomas Avenue; thence eastwardly along the north line of Thomas Avenue to the west line of Gallatin Pike; thence eastwardly across Gallatin Pike to a point at the intersection of the east line of Gallatin Pike and the north line of McGavock Pike; thence eastwardly along the north line of McGavock Pike to the east line of Bronte Avenue extended; thence southwardly along the east line of Bronte Avenue extended and Bronte Avenue to the north line of Litton Avenue; thence eastwardly along the north line of Litton Avenue to the east line of Northview Avenue extended; thence southwardly along the east line of Northview Avenue extended and along the east line of Northview Avenue to the north line of Highland Avenue; thence eastwardly along the north line of Highland Avenue and said line extended to the east line of Pennington Avenue; thence southwardly along the east line of Pennington Avenue to the north line of Ann Street; thence eastwardly along the north line of Ann Street to the west line of Branch Street; thence northwardly along the west line of Branch Street to the north line of Dorchester Street extended; thence eastwardly along the north line of Dorchester Street extended and the north line of Dorchester Street to the east line of Riverside Drive; thence southwardly along the east line of Riverside Drive to the north line of Porter Road; thence eastwardly along the north line of Porter Road to the north line of Mailan Drive; thence eastwardly along the north line of Mailan Drive to the north line of Traughber Drive; thence eastwardly with the north line of Traughber Drive to the west line of Lethia Drive; thence northwardly with the west line Lethia Drive to a point intersected by the north property line of Cornelia Fort Air Park extended; thence eastwardly along the north property line of Cornelia Fort Air Park extended and said north property line extended to the point of beginning.

The tract or parcel of land, as herein described, is excluded from the Urban Services District:

Beginning at the northeast corner of Heiman Street and Twenty-Third Avenue, North; thence northwardly with the east line of Twenty-Third Avenue, North, to the south line of the alley which runs between and parallel to Heiman Street and Underwood Street; thence eastwardly with the south line of said alley to the dividing line between lots number 9 and 10 fronting Heiman Street to the north line of Heiman Street; thence southwardly with said dividing line to the north line of Heiman Street; thence westwardly with the north line of Heiman Street to the point of beginning.

The tract or parcel of land, as herein described, is excluded from the Urban Services District:

The City of Berry Hill.

The present boundary of the Urban Services District [shall] be extended so as to embrace and include the hereinafter described property:

Beginning at a point in the boundary of the Urban Services District, said point being in the easterly margin of Spence Lane approximately 158 feet south of Spence Circle, thence in an easterly direction, southerly direction, and a westerly direction with the boundaries of property parcel No. 6, as shown on Map No. 94-15 of the official identification maps of the Metropolitan Government of Nashville and Davidson County, Tennessee, to a point in the easterly margin of Spence Lane and the boundary of the Urban Services District. Being more particularly shown on the map attached hereto and made a part of this Ordinance [Bill No. 73-458] and marked Exhibit "A".* (Bill No. 73-458, § 1, 3-20-73)

* **Editor's note—**Exhibit A is not set out in this code but is on file in office of the metropolitan clerk.

The present boundaries of the Urban Services District [shall] be extended so as to embrace and include the hereinafter described property:

Beginning at a point on the existing Urban Services District boundary, said point being the intersection of Murfreesboro Pike and Donelson Pike; thence southeastwardly with the centerline of Murfreesboro Pike to the easterly boundary extended of Town Park Estates as of record in Book 3300, Pages 64 and 65 R.O.D.C.; thence southwardly with said boundary extended and said boundary to the southerly boundary of said subdivision; thence westwardly with said boundary to its intersection with the easterly property line extended of parcel 148, map 134; thence southwardly with said property line extended and said property line to the

easterly boundary of Bush Industrial Subdivision as of record in Book 3500, Page 105, R.O.D.C.; continuing southwardly with said boundary to the southerly boundary of said subdivision; thence westwardly with said boundary to the southerly property line of parcel 146, map 134; continuing westwardly with said property line and said property line extended to its intersection with the centerline of Ezell Pike; thence westwardly with said centerline to its intersection with the easterly property line extended of parcel 144, map 134; thence southwardly with said property line extended, said property line and said property line extended to its intersection with the centerline of Mill Creek; thence southeastwardly, southwardly and southwestwardly with said centerline to its intersection with the northerly property line extended of parcel 178, map 134; thence eastwardly with said property line extended and said property line to the easterly property line of said parcel; thence southwardly with said property line to its southerly property line of said parcel; thence westwardly with said property line and said property line extended to its intersection with the centerline of Mill Creek; thence southwardly with said centerline to its intersection with the centerline of Franklin Limestone Road; thence southeastwardly with said centerline to its intersection with the northerly property line extended of parcel 65, map 148; thence eastwardly with said property line extended and said property line and continuing with the northerly property line of parcel 11, map 149, and said property line extended to its intersection with the centerline of Una-Antioch Pike; thence southwestwardly with said centerline to its intersection with the northerly property line extended of parcel 29, map 149; thence eastwardly with said property line extended and said property line to the easterly property line of said parcel; thence southwardly with said property line and continuing with the easterly property lines of parcels 30, 31, 32, 33, 34 and 36, map 149 to the intersection of said line with the northerly property line of parcel 191, map 149; thence southeastwardly with said property line and continuing with the rear property line of parcel 204, map 149 and parcel 37, map 149 to the easterly property line of said parcel; thence southwestwardly with said property line and said property line extended to its intersection with the centerline of Una-Antioch Pike; thence southwardly with said centerline to its intersection with the northerly property line extended of parcel 39, map 149; thence eastwardly with said property line extended and said property line to its easterly property line of said parcel; thence southwardly with said property line to its intersection with the northerly property line of parcel 212, map 149; thence eastwardly with said property line to the easterly property line of said parcel; thence southwardly with said property line to the southerly property line of said parcel; thence westwardly with said property line and continuing with the southerly property line of parcel 211, map 149 to its intersection with the easterly property line of parcel 223, map 149; thence southwardly with said property line and continuing with the easterly property line of parcel 41, map 149 to the intersection of said property line with the northerly property line of parcel 3, map 163; thence westwardly with said property line to the westerly property line of said parcel; thence southwardly with said property line and said property line extended to its intersection with the centerline of Moss Road; thence westwardly with said centerline to the westerly property line extended of parcel 26, map 163; thence southwardly with said property line extended and with said property line and continuing with the westerly property line of parcel 27, map 163 to the southerly property line of said parcel; thence eastwardly with said property line and continuing with the southerly property line of parcel 34, map 163 and said property line extended to its intersection with the centerline of Rural Hill Road; thence northeastwardly with said centerline to its intersection with the northerly property line extended of parcel 95.3, map 163; thence southeastwardly with said property line extended and said property line to the westerly property line of parcel 95.2, map 163; thence southwestwardly, northwestwardly and southwestwardly with said property line and said property line extended to the centerline of Mt. View Road; thence southeastwardly with said centerline to its intersection with the easterly property line extended of parcel 103, map 163; thence southwestwardly with said property line extended and said property line to the northerly property line of parcel 107, map 163; thence eastwardly with said property line to the easterly property line of said parcel; thence southwardly with said property line and said property line extended to its intersection with the centerline of the Louisville and Nashville Railroad right-of-way; thence northwestwardly with said centerline to the easterly property line extended of parcel 179, map 163; thence southwestwardly with said property line extended and said property line extended to its intersection with the centerline of Interstate 24; thence northwestwardly with said centerline to its intersection with the easterly property line extended of parcel 92, map 163; thence southwardly with said property line extended and said property line and continuing with the easterly property line of parcel 158, map 163 to the northerly property line of parcel 93, map 163; thence eastwardly with said property line to the easterly property line of said parcel, thence southwardly with said property line to the southerly property line of said parcel; thence westwardly with said property line and said property line extended across

the right-of-way of Cane Ridge Road to the northerly property line of parcel 3.1, map 174; thence westwardly with said property line and continuing with the northerly property lines of parcels 44, 52, 3, and 2 all on map 174 to the northerly property line of parcel 1, map 174; thence westwardly with said property line and said property line extended to its intersection with the centerline of Mill Creek; thence southwardly with said centerline to the southerly property line extended of parcel 124, map 162; thence westwardly with said property line extended, said property line and said property line extended across the right-of-way of Blue Hole Road to the southerly property line of parcel 122, map 162; thence westwardly with said property line to the southerly property line of parcel 116, map 162; thence westwardly, northwardly and westwardly with said property line to the southerly property line of parcel 114, map 162; thence westwardly with said property line and continuing with the southerly property lines of parcels 146, 147, 113.1 and 113, all on map 162 to the westerly property line of parcel 113, map 162; thence northwardly with said property line to the southerly property line of parcel 112, map 162; thence westwardly with said property line and continuing with the southerly property lines of parcels 108, 106, and 129, all on map 162 to the southerly property line of parcel 103, map 162; thence westwardly with said property line and said property line extended across the right-of-way of Old Hickory Boulevard to the southerly property line of parcel 90, map 162; thence westwardly with said property line to the westerly property line of said parcel; thence northwardly with said property line to the southerly property line of parcel 89, map 162; thence westwardly with said property line and continuing with the southerly property line of parcel 85, map 162 to the easterly property line of parcel 84, map 162; thence southwardly with said property line and continuing southwardly, eastwardly and southwardly with the easterly property line of parcel 3, map 173 and said property line extended to its intersection with the centerline of Barnes Road; thence westwardly with said centerline to its intersection with the centerline of Nolensville Pike; thence southwardly with said centerline to its intersection with the southerly boundary extended of Forest Acres Estates, Section 1 as recorded in Book 3700, Page 2, R.O.D.C.; thence westwardly with said boundary extended, said boundary and the southerly boundary of Forest Acres Estates, Section 2 as of record in Book 4175, Page 128 to the westerly boundary of said subdivision; thence northwardly with said boundary to the southerly property line of parcel 77, map 172; thence northwestwardly with said property line to the southerly property line of parcel 113, map 172; thence westwardly with said property line to the westerly property line of parcel 76, map 172; thence southwardly with said property line to the northerly property line of parcel 30, map 172; thence westwardly, northwestwardly and westwardly with said property line to the westerly property line of said parcel; thence southwardly with said property line to the northerly property line of parcel 123, map 172; thence westwardly with said property line and said property line extended to its intersection with the centerline of Edmonson Pike; thence southwardly with said centerline to its intersection with the centerline of Cloverland Drive; thence westwardly with said centerline to its intersection with the westerly property line extended of parcel 97, map 171; thence southwardly with said property line extended and continuing southwardly and southwestwardly with said property line to the Davidson-Williamson County Line; thence northwestwardly with said line to the westerly property line of parcel 1, map 170; thence northwardly with said property line and said property line extended to the corporate line of the City of Oak Hill; thence eastwardly and northeastwardly with said corporate line to its intersection with the existing Urban Services District Line; thence generally eastwardly, northeastwardly and eastwardly to Donelson Pike, the point of beginning, all of which is more particularly shown by lines, words and figures on the map attached hereto and made a part of this Ordinance [Bill No. 73-697] and marked Exhibit A*.

Parcel numbers refer to parcels as shown on the Metropolitan Planning Commission property map series 200 on September 10, 1973. (Bill No. 73-697, § 1, 11-20-73)

* **Editor's note—**Exhibit A is not set out in this Code but is on file in the office of the metropolitan clerk.

The present boundaries of the Urban Services District [shall] be extended so as to embrace and include the hereinafter described property:

Beginning at a point on the existing Urban Services District boundary, said point being its intersection with the existing corporate line of the City of Oak Hill, said corporate line being at this point the westerly boundary of Interstate No. 65; thence, northwardly and westwardly with said corporate line to its intersection with the existing Urban Services District boundary; thence, northwardly, eastwardly, southwardly, and westwardly with said boundary to the point of beginning. (Bill No. 75-1246, § 1, 5-20-75)

The present boundaries of the Urban Services District [shall] be extended so as to embrace and include the hereinafter described property:

Beginning at a point on the existing Urban Services District boundary, said point being its intersection with the centerline of Knight Road; thence northwardly with

said centerline to its intersection with the centerline of Briley Parkway; thence eastwardly with said centerline to its intersection with the centerline of Interstate 24; thence southwardly with said centerline to its intersection with Ewing Creek; thence westwardly with said creek to the point of beginning. (Bill No. 75-1299, § 1, 7-15-75)

The present boundaries of the Urban Services District [shall] be extended so as to embrace and include the hereinafter described property:

Beginning at a point on the existing Urban Services District boundary, said point being the intersection of the northerly right-of-way line of Old Hickory Boulevard with the centerline of Interstate 40 West; thence southwestwardly with said centerline to its intersection with the centerline of Charlotte Pike; thence westwardly with said centerline to its intersection with the extended westerly property line of parcel 17, map 102; thence northwardly with said property line extended, with said property line and with said property line extended to the centerline of the Cumberland River; thence northeastwardly with said centerline to its intersection with the existing Urban Services District boundary; thence eastwardly with said boundary to the point of beginning. Parcel number refers to parcel as shown on the Metropolitan Planning Commission property map series 200 on January 22, 1976. (Bill No. 76-115, § 1, 4-6-76)

The present boundaries of the Urban Services District [shall] be extended so as to embrace and include the hereinafter described property:

Beginning at a point on the present Urban Services District Line, said point being the intersection of the centerline of Clarksville Pike with the westerly property line extended of parcel 110 cap 58, thence northwardly with said line extended and with said line to its intersection with the westerly property line of parcel 109 map 58, thence northwardly and northwestwardly with said line to its intersection with the northerly property line of parcel 106 map 58, thence eastwardly with said line to its intersection with the westerly property line of parcel 100 map 58, thence northeastwardly with said line and said line extended to the centerline of Homeland Drive, thence northwestwardly with said centerline to its intersection with the southerly property line extended of parcel 98 map 58, thence westwardly with said line extended and said line to its intersection with the westerly property line of said parcel, thence northwardly with said line and with the westerly property lines of parcels 97, 96 and 95 map 58 to the intersection of the westerly boundary of parcel 95 map 58 with the northerly property line of said parcel, then eastwardly with said line and with said line extended to the centerline of Homeland Drive, thence northwardly with said centerline to the southerly property line extended of parcel 123 map 48, thence northwestwardly with said line extended and said line to its intersection with the westerly property line of said parcel, thence northeastwardly with said line and continuing along the rear property lines of parcels 122, 121, 105, 104, 120, 119, 118, 117, and 116 map 48 to the northwest corner of parcel 116 map 48, thence eastwardly with the northerly property line of said parcel and with said line extended to the centerline of Homeland Drive, thence northeastwardly with said centerline and said centerline extended across the right-of-way of Stevens Lane to the westerly property line of parcel 100 map 48, thence northwardly with said line to its intersection with the southerly property line of parcel 99 map 48, thence northwestwardly with said line and continuing along the rear property lines of parcels 98, 97, 96, 167, 95, 94, and 93 map 48 to the northwest corner of parcel 93 map 48, thence eastwardly with the northerly property line of said parcel to its intersection with the westerly property line of parcel 85, thence northwardly with said line to its intersection with the southerly property line of parcel 84 map 48, thence westwardly with said line and continuing westwardly, northwestwardly, southwestwardly and northwardly along the rear property lines of parcels 155, 153, 149, 151, 143, 145, 147, and 82 map 48 to a point, said point being the intersection of the westerly property line of parcel 82 map 48 with the southerly right-of-way line of Dry Fork Road, thence with a line projected across said right-of-way to a point, said point being the intersection of the northerly right-of-way line and the westerly property line of parcel 19 map 48, thence northwardly with said line and said line extended to the centerline of Clarksville Pike, thence southeastwardly with said centerline to its intersection with the centerline extended of Lloyd Road, thence northeastwardly with said centerline extended and said centerline to its intersection with the easterly property line extended of parcel 180 map 48, thence southwardly with said line extended and said line to its intersection with the southerly property line of said parcel, thence southwestwardly with said line to its intersection with the rear property line of parcel 33 map 48, thence southeastwardly with said line and continuing with the rear property lines of parcels 32, 31, 30 and 29 map 48 to a point, said point being the intersection of the rear property line of parcel 29 map 48 with the southeasterly property line of said parcel, thence southwestwardly with said line and said line extended to the centerline of Clarksville Pike, thence southeastwardly with said centerline to its intersection with the northwesterly property line extended of parcel 28 map 48, thence northeastwardly with said line extended and said line to its intersection with the northeasterly property line of said parcel, thence southeastwardly with said line and continuing along the rear property lines of parcels 27, 26,

25, 24 and 23 map 48 to a point, said point being the intersection of the northeasterly property line of parcel 23 map 48 with the southeasterly property line of said parcel, thence southwestwardly with said line and said line extended to the centerline of Clarskville Pike, thence southeastwardly with said centerline to its intersection with the centerline extended of Dry Fork Road, thence eastwardly with said centerline extended, with said centerline and with said line extended to the centerline of Buena Vista Pike, thence northwardly with said centerline to the intersection of the southerly property line extended of parcel 51 map 49, thence westwardly with said line extended and said line to its intersection with the westerly property line of said parcel, thence northwardly with said line and continuing along the rear property lines of parcels 50, 290, 49, 48 and 47 map 49 to a point, said point being the intersection of the westerly property line extended of parcel 47 map 49 and the centerline of Lloyd Road, thence westwardly with said centerline to its intersection with the westerly property line extended of parcel 44 map 49, thence northwardly with said line extended and with said line to its intersection with the northerly property line of said parcel, thence eastwardly with said line and continuing with the northerly property line of parcel 43 map 49 and said line extended to the centerline of Whites Creek Pike, thence northwardly with said centerline to its intersection with the northerly property line extended of parcel 200 map 49, thence eastwardly with said line and continuing with the northerly property line of parcel 198 map 49 to its intersection with the easterly property line of parcel 197 map 49, thence southeasterly with said line and continuing in an easterly direction along the rear property lines of parcels 194, 193, and 192 map 49, and in a southerly direction along the rear property lines of parcels 282, 189, 188, 187, 186, 185, 181, 180, 179 and 178 map 49 to a point, said point being intersection of the rear property line of parcel 178 map 49 with the southeasterly property line of said parcel, thence southwestwardly with said line and with said line extended to its intersection with the centerline of Whites Creek Pike, thence southeastwardly with said centerline to its intersection with the northwesterly property line extended of parcel 177 map 49, thence northeastwardly with said line extended and said line to its intersection with the northeasterly property line of said parcel, thence southeastwardly with said line and continuing along the rear property lines of parcels 176, 175, 174, 173, 172, 171, 170, 169, 168 and 167 map 49 to a point, said point being the intersection of the northeasterly property line of parcel 167 map 49 with the southeasterly property line of said parcel, thence southwestwardly with said line and said line extended to the centerline of Whites Creek Pike, thence southeastwardly with said centerline to its intersection with the centerline extended of Green Lane, thence eastwardly with said centerline to its intersection with the westerly property line extended of parcel 166 map 49, thence northwardly with said line extended and said line to its intersection with the northerly property line of said parcel, thence eastwardly with said line and continuing along the rear property lines of parcels 165, 164, 163, 62, 161, 160, 159, 158, 157, 156 and 155 map 49 to a point, said point being the intersection of the northerly property line of parcel 155 map 49 with the easterly property line of said parcel, thence southwardly with said line and said line extended to the centerline of Green Lane, thence eastwardly with said centerline to its intersection with the westerly property line extended of parcel 153 map 49, thence northwardly with said line extended and said line to its intersection with the northerly property line of said parcel, thence eastwardly with said line and continuing along the rear property lines of parcels 152, 151 and 150 map 49 to a point, said point being the intersection of the northerly property line of parcel 149 map 49, thence northwardly with said line to its intersection with the northerly property line of said parcel, thence eastwardly with said line and said line extended to the centerline of Knight Drive, thence northwardly with said centerline to its intersection with the property line extended of parcel 251 map 49, thence eastwardly with said line extended and with said line and continuing with the northerly property line of parcel 253 map 49 to its intersection with the easterly property line of said parcel, thence southwardly with said line to its intersection with the southerly property line of said parcel, thence westwardly with said line to its intersection with the easterly property line of parcel 254 map 49, thence southwardly with said line to its intersection with the southerly property line of said parcel, thence westwardly with said line to its intersection with the easterly property line of parcel 255 map 49, thence southwardly along said property line and continuing along the rear property line of parcels 256, 257 and 258 map 49 to a point, said point being the intersection of the easterly property line of parcel 258 map 49 with the southerly property line of said parcel, thence westwardly along said line and said line extended to the centerline of Knight Drive, thence southwardly with said centerline to its intersection with the northerly property line extended of parcel 261 map 49, thence southeastwardly along said line to its intersection with the easterly property line of said parcel, thence southwardly along said property line to its intersection with the northerly boundary of parcel 262 map 49, thence eastwardly along said property line to its intersection with the easterly property line of said parcel, thence southwestwardly along said property line and continuing along the easterly property line of parcel

263 map 49 and said property line extended to the centerline of Knight Drive, thence southwardly along said centerline to its intersection with the northerly property line extended of parcel 264 map 49, thence eastwardly, southwardly and westwardly along the property lines of said parcel to the southerly property line extended to the centerline of Knight Drive, thence southwardly along said centerline to its intersection with a point of the existing Urban Services District boundary line, said point being the intersection of the centerline of Knight Drive with the centerline of Briley Parkway, thence in a general westwardly direction along said boundary to the point of beginning. Parcel numbers refer to parcels as shown on the Metropolitan Planning Commission property map series 200 on March 29, 1976. Further, the property described on map 49, parcel 52 shall be included in the annexation to the Urban Services District. (Bill No. 76-144, § 1, 5-18-76)

The present boundaries of the Urban Services District [shall] be extended so as to embrace and include the hereinafter described property:

Area One—Inglewood-Maplewood. Beginning at a point on the existing Urban Services District boundary line, said point being the intersection of the centerline of Briley Parkway with the centerline of Interstate 24; thence northwardly with the centerline of Interstate 24 to its intersection with the centerline of Brick Church Lane; thence eastwardly with said centerline to its intersection with the centerline of Brick Church Pike; thence southwardly with said centerline to its intersection with the northerly property line extended of parcel 1 map 50-10; thence eastwardly with said property line extended, said property line and said property line extended to the northwest corner of parcel 5 map 50-10; thence eastwardly with the northerly property line of said parcel and continuing with the northerly property lines of parcels 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, and 25 map 50-10; thence eastwardly with the northerly property line extended of last said parcel to its intersection with the northwest corner of parcel 1 map 50-11; thence eastwardly with the northerly property line of said parcel and continuing with the rear property lines of parcels 2, 3, and 4 map 50-11 to its intersection with the northerly property line of parcel 6 map 50-11; thence eastwardly with said property line and said property line extended to its intersection with the northwest corner of parcel 7 map 50-11; thence eastwardly with the northerly property line of said parcel and continuing with the rear property lines of parcels 9, 10 and 12 map 50-11; thence eastwardly with the northerly property line of last said parcel and said property line extended to its intersection with the northwest corner of parcel 38 map 50-11; thence eastwardly with the northerly property line of said parcel and said property line extended to its intersection with the northwest corner of parcel 49 map 50-11; thence eastwardly with the northerly property line of said parcel to its intersection with the northerly property line of parcel 48 map 50-11; thence eastwardly with the northerly property line of said parcel to its intersection with the northerly property line of parcel 50 map 50-11; thence eastwardly with said property line and said property line extended to the northwest corner of parcel 56 map 50-11; thence eastwardly with the northerly property line of said parcel to its intersection with the easterly property line of said parcel; thence southwardly with said property line and continuing with the rear property lines of parcels 57 and 58 map 50-11 to its intersection with the easterly property line of parcel 61 map 50-11; thence southwardly with said property lines and said property line extended to the northeast corner of parcel 41 map 50-15; thence southwardly with the easterly property line of said parcel to its intersection with the northerly right-of-way of Briley Parkway; thence southwardly along a line projected across the right-of-way of Briley Parkway to the intersection of the southerly right-of-way of Briley Parkway and the westerly property line of parcel 62 map 50-15; thence northeastwardly with the northerly property line of said parcel and continuing along the rear property line of parcels 63, 64, 65, 66, 67, 68, 69, 70 and 71 map 50-15 to its intersection with the easterly property line of last said parcel; thence southwardly along said property line and said property line extended to its intersection with the northerly property line of parcel 2 map 50-16; thence eastwardly with said property line to its intersection with the northerly property line of parcel 9 map 50-16; thence eastwardly with said property line and said property line extended to its intersection with the centerline of Dickerson Pike; thence northwardly with said centerline to its intersection with the centerline of Briley Parkway; thence eastwardly with said centerline to its intersection with the centerline of Walton Lane; thence eastwardly with said centerline to its intersection with the centerline of Briarville Road; thence northwardly with said centerline to its intersection with northerly property line extended of parcel 1 map 51-14; thence eastwardly with said property line extended and said property line to its intersection with the northerly property line of parcel 2 map 51-14; thence eastwardly with said property line to its intersection with the easterly property line of said parcel; thence southwardly with said property line to its intersection with the northerly property line of parcel 3 map 51-14; thence eastwardly with said property line to its intersection with the northerly property line of parcel 5 map 51-14; thence eastwardly with said property line to its intersection with the westerly right-of-way of Lewis

Road; thence eastwardly along a line protected across the right-of-way of Lewis Road to the intersection of the easterly right-of-way of Lewis Road and the northerly property line of parcel 10 map 51-14; thence eastwardly with said property line and said property line extended to the centerline of Saunders Avenue; thence southwardly with said centerline to its intersection with the northerly property line extended of parcel 28 map 51-15; thence eastwardly with said property line extended and said property line to its intersection with the easterly property line of said parcel; thence southwardly with said property line to its intersection with the northerly property line of parcel 29 map 51-15; thence eastwardly with said property line to its intersection with the westerly right-of-way of Oakland Acres Drive; thence eastwardly along a line projected across the right-of-way of Oakland Acres Drive to the intersection of the easterly right-of-way of Oakland Acres Drive and the northerly property line of parcel 39 map 51-15; thence eastwardly with said property line and said property line extended to the centerline of Love Avenue; thence southwardly with said centerline to its intersection with the centerline of Walton Lane; thence eastwardly with said centerline to its intersection with the centerline of Gallatin Pike; thence southwardly with said centerline to its intersection with the centerline of Briley Parkway; thence eastwardly with said centerline to its intersection with the westerly property line extended of parcel 150 map 61-4; thence northeastwardly with said property line extended and said property line to its intersection with the northerly property line of said parcel; thence eastwardly with said property line to its intersection with the northerly property line of parcel 25.2 map 61-4; thence eastwardly with said property line and continuing with the northwesterly property lines of parcels 30, 31, 32, and 33 map 61-4 to its intersection with the westerly property line of parcel 9 map 51-16; thence northwardly with said property line and continuing with the westerly property lines of parcels 11, 12 and 13 map 51-16 to its intersection with the westerly property line of parcel 163 map 51; thence northwardly with said property line to the shoreline of Cheek Lake; thence northeastwardly with said shoreline and said centerline extended to the centerline of the Cumberland River; thence southwardly with said centerline to its intersection with the existing Urban Services District boundary line; thence in a general westwardly and northwardly direction with said boundary line to the point of beginning. Parcel numbers refer to parcels as shown on the Metropolitan Planning Commission property map series 200 on June 18, 1976.

Area Two—Donelson. Beginning at a point on the existing Urban Services District boundary recorded on June 17, 1976, said point being the intersection of the northerly property line extended of parcel 21 map 84 with the centerline of the Cumberland River; thence eastwardly along said property line extended and said property line to the intersection of said property line extended with the centerline of Briley Parkway; thence northwardly with said centerline to its intersection with the northerly property line extended of parcel 73 map 62; thence eastwardly with said property line extended and said property line and continuing eastwardly with the northerly property lines of parcels 22 and 20 map 62 to the westerly right-of-way line of Pennington Bend Road; thence eastwardly with a line projected across said right-of-way to the northwest corner of parcel 42 map 62; thence eastwardly with the northerly property line of said parcel and said property line extended to its intersection with the westerly property line of parcel 41.2 map 62; thence northwardly, eastwardly and southwardly with the westerly, northerly and easterly property lines of said parcel to the intersection of said easterly property line with the northerly property line of parcel 1 map 62-7; thence eastwardly with said property line and continuing eastwardly and southwardly with the rear property lines of parcels 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, and 57 map 62-11, parcels 45, 46, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58, 59, 63, and 64 map 62-15 and parcels 31 and 30 map 73-3 to the southeast corner of parcel 30 map 73-3; thence westwardly with the southerly property line of said parcel and continuing with the southerly property lines of parcels 29 and 22 map 73-3 to the easterly right-of-way line of Western Hills Drive; thence southwardly with said right-of-way line to the northerly property line of parcel 60 map 73-3; thence eastwardly with said property line to the rear property line of said parcel; thence southeastwardly with said property line and continuing with the rear property lines of parcels 61, 63, 64, 65 and 66 map 73-3, parcels 1, 2, 3, 4, 5, 6, 7 and 8 map 73-4 and parcels 22, 24, 25, 26, 27, 28 and 29 map 73-8 to a point, said point being the intersection of the rear property line of parcel 29 map 73-8 with the northerly property line of parcel 30 map 73-8; thence southwardly and eastwardly with said property line and said property line extended to the centerline of the Cumberland River; thence southwardly and eastwardly with said centerline to its intersection with the centerline extended of Stones River; thence with said centerline extended and said centerline as it meanders in a generally southeasterly direction to its intersection with the centerline of Interstate 40; thence southwestwardly with said centerline to its intersection with the southwesterly property line extended of parcel 78 map 96-16; thence northwestwardly with said property line extended, said property line and said property line extended across the right-of-way of Niagara Drive to the southwesterly corner of parcel 79

map 96-16; thence northwestwardly with the southwesterly property line of said parcel to the rear property line of said parcel; thence northwardly with said property line continuing with the westerly property lines of parcels 80, 81 and 113 map 96-16 to the westerly right-of-way line of Fall Creek Drive; thence northwardly with said line to its intersection with the southerly property line of parcel 107 map 96-16; thence westwardly with said property line to the westerly property line of said parcel; thence northwardly with said property line and continuing with the westerly property lines of parcels 108, 109, 110, 111 and 112 map 96-16 and parcels 40 and 48 map 96-12 and the westerly property line extended of last said parcel to the centerline of McCrory Creek Road; thence southwestwardly with said centerline to the easterly property line extended of parcel 93 map 96; thence northwardly with said property line and said property line extended to the centerline of McCrory Creek; thence southwestwardly along said centerline to a point, said point being the intersection of the centerline of McCrory Creek with the northeasterly property line of parcel 37 map 96-15 ; thence southeastwardly along said property line and said property line extended to the centerline of McCrory Creek Road; thence southwestwardly with said centerline to the easterly property line extended of parcel 92 map 96-15; thence northwardly with said property line extended and said property line to the northwesterly property line of said parcel; thence southwestwardly with said property line to the westerly property line of said parcel; thence southwardly with said property line to the southwesterly property line of said parcel; thence southeastwardly with said property line to its intersection with the northwesterly property line of parcel 90 map 96-15; thence southwestwardly with said property line to its intersection with the northwesterly property line of parcel 106 map 96-15; thence southwestwardly with said property line to the southwesterly property line of said parcel; thence southeastwardly with said property line and said property line extended to the centerline of McCrory Creek Road; thence southwestwardly with said centerline to its intersection with the centerline of Elm Hill Pike; thence eastwardly with said centerline to its intersection with the centerline of Interstate 40; thence westwardly with said centerline to its intersection with the centerline of Donelson Pike; thence southwardly with said centerline to its intersection with the existing Urban Services District boundary; thence in a generally westwardly, northwardly and northeastwardly direction with aid boundary to the point of beginning. Parcel numbers refer to parcels as shown on the Metropolitan Planning Commission property map series 200 on June 17,1976.

Further, the hereinafter described property shall be included in the annexation to the Urban Services District:

Beginning at a point, said point being the intersection of the centerline of Interstate 40 with the centerline extended of Fitzpatrick Road; thence southwardly with said centerline extended and said centerline to its intersection with the southerly property line extended of parcel 58 map 96-16; thence westwardly with said property line extended and said property line to its intersection with the southerly property line of parcel 42 map 96-16; thence westwardly with said property line and said property line extended to its intersection with the southeasterly corner of parcel 41 map 96-16; thence westwardly with the southerly property line of said parcel to its intersection with the southerly property line of parcel 36 map 96-16; thence westwardly with said property line to its intersection with the southeasterly property line of parcel 35 map 96-16; thence southwestwardly with said property line and continuing along the rear property line of parcels 34, 33, 32, 31, 30, 29, 28, 27, 26 and 25 map 96-16 to its intersection with the southerly property line of parcel 25 map 96-16; thence westwardly with said property line to its intersection with the southwesterly property line of said parcel; thence northwestwardly with said property line and said property line extended to the southwesterly corner of parcel 24 map 96-16; thence northwestwardly with the southwesterly property line of said parcel and said property line extended to its intersection with the centerline of Interstate 40; thence northeastwardly with said centerline to the point of beginning.

Further, the hereinafter described property shall be included in the annexation to the Urban Services District:

Beginning at a point on the existing Urban Services District boundary, said point being the intersection of the northerly property line extended of parcel 21 map 84 with the centerline of the Cumberland River; thence northwardly and northeastwardly with the centerline of the Cumberland River to its intersection with the northeasterly property line extended of parcel 164 map 52-9; thence southwardly with said property line extended and said property line to its intersection with the northerly right-of-way of Miami Avenue; thence with a line projected across Miami Avenue to the intersection of its southerly right-of-way with the northeasterly property line of parcel 165 map 52-9; thence southeastwardly with said property line to its intersection with the southeasterly property line of said parcel; thence southwestwardly with said property line and continuing along the rear property lines of parcels 166, 167, 168, 169, 170, 172, 173, 174, 175, 176, 177, 178, 179, 180, 183, 184, 185, 186, 187 and 188 map 52-9, and parcels 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51 and 52 map 52-9 to the

intersection of the last said parcel with the northeasterly property line of parcel 59 map 52-13; thence southeastwardly with said property line to its intersection with the southeasterly property line of said parcel; thence southwestwardly with said property line to its intersection with the northeasterly property line of parcel 60 map 52-13; thence southeastwardly with said property line and continuing along the rear property lines of parcels 61, 62, 63, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, and 88 map 52-13 to its intersection with the southeasterly property line of last said parcel; thence southwestwardly with said property line to its intersection with the northwesterly property line of parcel 3 map 52; thence northeastwardly with said property line to its intersection with the northeasterly property line of said parcel; thence southeastwardly with said property line to its intersection with the northeasterly property line of parcel 4 map 52; thence southeastwardly with said property line to its intersection with the northwesterly property line of parcel 5 map 52; thence northeastwardly with said property line to its intersection with the northeasterly property line of last said parcel; thence southeastwardly with said property line to its intersection with the northwesterly property line of parcel 7 map 52; thence northeastwardly with said property line to its intersection with the northwesterly property line of parcel 8 map 52; thence northeastwardly with said property line and said property line extended to its intersection with the centerline of Lock Two Road; thence southwardly with said centerline and said centerline extended to its intersection with the centerline of Pennington Bend Road; thence southeastwardly with said centerline to its intersection with the westerly property line extended of parcel 72 map 62; thence northwardly with said property line extended and said property line to its intersection with the northerly property line of said parcel; thence eastwardly with said property line to its intersection with the easterly property line of said parcel; thence southwardly with said property line and said property line extended to its intersection with the centerline of Barton Lane; thence southeastwardly with said centerline to its intersection with the northerly property line extended of parcel 40 map 62; thence eastwardly with said property line extended and said property line to its intersection with the easterly property line of said parcel; thence southwardly with said property line to its intersection with the northerly property line of parcel 41.1 map 62; thence eastwardly with said property line and continuing along the northerly property line of parcel 104 map 62 to its intersection with the easterly property of last said parcel; thence southwardly with said property line and aid property line extended to the centerline of Pennington Bend Road; thence eastwardly with said centerline to its intersection with the westerly property line extended of parcel 76 map 62; thence northwardly with said property line extended and said property line to its intersection with the northeasterly property line of said parcel; thence southeastwardly with said property line to its intersection with the easterly property line of said parcel; thence southwardly with said property line and said property line extended to its intersection with the centerline of Pennington Bend Road; thence southwardly with said centerline to its intersection with the southerly property line extended of parcel 19 map 62; thence northwestwardly with said property line extended and said property line to its intersection with the southerly property line of parcel 18 map 62; thence northwestwardly with said property line to its intersection with the southerly property line of parcel 17 map 62; thence northwestwardly with said property line and said property line extended to its intersection with the centerline of Briley Parkway; thence southwardly with said centerline to its intersection with the northerly property line extended of parcel 21 map 84; thence westwardly with said property line extended, said property line and said property line extended to the point of beginning.

Area Three—West Meade—Hillwood. Beginning at a point on the existing Urban Services District boundary as recorded on June 18, 1976, said point being the intersection of the city boundary of the City of Belle Meade, Hillwood Drive and the Louisville and Nashville Railroad, thence southwestwardly with the boundary of the City of Belle Meade and said boundary line extended through the intersection of the centerlines of Page Road and Nichol Lane to the northeasterly boundary line of Percy Warner Park; thence northwestwardly and westwardly with said boundary line and said boundary line extended to the centerline of State Route 100; thence southwestwardly with said centerline to its intersection with the southwesterly property line extended of parcel 34 map 143; thence northwestwardly with said property line extended to its intersection with the southeasterly property line of parcel 27 map 143; thence southwestwardly with said property line to its intersection with the southwesterly property line of said parcel; thence northwestwardly with said property line to its intersection with the westerly property line of said parcel; thence northwardly with said property line to its intersection with the westerly property line of parcel 28 map 143; thence northwardly with said property line to its intersection with the westerly property line of parcel 7 map 129-14; thence northwardly with said property line and said property line extended to its intersection with the westerly property line extended of parcel 5 map 129-14; thence northwardly with said property line extended and said property line to its

intersection with the westerly property line of parcel 10 map 129; thence northwardly with said property line and said property line extended to its intersection with the centerline of Brookmont Terrace; thence southwestwardly with the centerline of Brookmont Terrace to its intersection with the southwesterly property line extended of parcel 3 map 129; thence northwestwardly along said property line extended and said property line to its intersection with the southerly property line of parcel 67 map 129-10; thence westwardly along said property line to its intersection with the southerly property line of parcel 47 map 129-10; thence westwardly along the southerly property line of said parcel to its intersection with the southerly property line of parcel 46 map 129-10; thence westwardly with said property line to its intersection with the westerly property line of said parcel; thence northwardly with said property line to its intersection with the westerly property line of parcel 45 map 129-10; thence northwardly and northwestwardly with said property line to its intersection with the southwesterly property line of parcel 44 map 129-10; thence northwestwardly with said property line and continuing with the rear property lines of parcels 25 and 24 map 129-10 and parcels, 8, 2, and 1 map 129-9, and parcels 33, 31, 25, 24 and 5 map 129-5; thence northwestwardly with the rear property line of last said parcel to its intersection with the southerly property line of parcel 7 map 128-8; thence westwardly with said property line to its intersection with the southeasterly property line of parcel 6 map 128-8; thence southwestwardly with said property line and said property line extended to its intersection with the southeast corner of parcel 5 map 128-8; thence westwardly, northwestwardly and northeastwardly with the southerly property line of said parcel to its intersection with the northwesterly property line of parcel 3 map 128-8; thence northeastwardly with said property line and continuing along the rear property line of parcel 1 map 128-8, parcels 3, 2 and 1 map 129-5 and parcel 1 map 129-1 to its intersection with the southwesterly property line of parcel 5 map 129-1; thence northwestwardly with said property line to its intersection with the southwesterly property line of parcel 59 map 129-1; thence northwestwardly and northeastwardly along the southwesterly property line of said parcel and continuing along the rear property lines of parcels 57, 6, 10, 11, 19 and 20 map 129-1 to the intersection of the property line of last said parcel with the southwesterly property line of parcel 58 map 115-13 thence northwestwardly with said property line and continuing with the southerly property line of parcel 59 map 115-13 to its intersection with the southerly property line of parcel 55 map 129-1; thence westwardly with said property line and said property line extended to its intersection with the southeast corner of parcel 3 map 114-16; thence westwardly with the southerly property line of said parcel to its intersection with the westerly property line of said parcel; thence northwardly with said property line and continuing with the westerly property line of parcel 2 map 114-16 to its intersection with the northerly property line of parcel 1 map 114-16; thence eastwardly with said property line and continuing with the rear property lines of parcels 16 and 17 map 115-113 to its intersection with the northwesterly property line of parcel 18 map 115-13; thence northeastwardly with said property line and continuing with the rear property lines of parcels 19, 20, 21, 22, 23, 24, 25, 26 and 27 map 115-13 and the westerly property line extended of the last said parcel to its intersection with the southwest corner of parcel 28 map 115-13; thence northwardly with the westerly property line of said parcel to its intersection with the westerly property line of parcel 29 map 115-13; thence northwardly with said property line and said property line extended to its intersection with the southwest corner of parcel 48 map 115-9; thence northwardly with the westerly property line of said parcel and continuing with the rear property lines of parcels 49, 50, 51, 17, 16, 15, 14 and 8 map 115-9 and the rear property line extended of last said parcel to its intersection with the southwest corner of parcel 1 map 115-9; thence northwardly with the westerly property lines of said parcel and continuing along the rear property lines of parcels 50, 49, 48, 47, 46, 45, 44, 43, 42, 41 and 37 map 115-5 and parcels 62, 61, and 60 map 115-1 to the intersection of last said property line with the westerly property line of parcel 59 map 115-1; thence northwardly with said property line and said property line extended to the centerline of Interstate 40; thence southwestwardly with said centerline to its intersection with the southerly property line extended of parcel 123 map 114; thence westwardly with said property line extended and said property line to its intersection with the westerly property line of said parcel; thence northwardly with said property line and continuing with the rear property lines of parcels 122, 121 and 120 map 114 to its intersection with the southerly property line of parcel 119 map 114; thence westwardly with said property line to its intersection with the westerly property line of said parcel; thence northwardly with said property line and continuing with the rear property line of parcel 118 map 114 to its intersection with the westerly property line of parcel 117 map 114; thence northwardly, northeastwardly and northwardly with said property line and said property line extended to its intersection with the centerline of Charlotte Pike; thence northeastwardly with said centerline to its intersection with the centerline of Old Hickory Boulevard; thence northwardly with said centerline to its intersection with the northerly property line extended of

parcel 141 map 114; thence eastwardly with said property line extended and said property line to its intersection with the northwesterly property line of parcel 140 map 114; thence northeastwardly with said property line to its intersection with the northwesterly property line of parcel 139 map 114; thence northeastwardly with said property line to its intersection with the southerly property line of parcel 138 map 114; thence westwardly, northwardly and eastwardly with the rear property line of said parcel to its intersection with the westerly property line of parcel 137 map 114; thence northeastwardly with said property line and said property line extended to its intersection with the centerline of Old Charlotte Pike; thence southeastwardly with said centerline to its intersection with the centerline of Charlotte Pike; thence northeastwardly with said centerline to its intersection with the centerline of Old Charlotte Pike; thence northeastwardly with said centerline to its intersection with the northwesterly property line extended of parcel 1 map 115; thence northeastwardly with said property line to its intersection with the northerly property line of said parcel; thence eastwardly with said property line and continuing with the rear property lines of parcels 2, 3, 4 and 7 map 115 and the rear property line extended of last said parcel to its intersection with the centerline of Charlotte Pike; thence northeastwardly with said centerline to its intersection with the southerly property line extended of parcel 46 map 102; thence westwardly with said property line extended and said property line to its intersection with the westerly property line of said parcel; thence northwardly with said property line to its intersection with the southerly property line of parcel 45 map 102; thence westwardly with said property line to its intersection with the westerly property line of said parcel; thence northwardly with said property line to its intersection with the westerly property line of parcel 44 map 102; thence northwardly with said property line to its intersection with the westerly property line of parcel 43 map 102; thence northwardly with said property line to its intersection with the southerly property line of parcel 42 map 102; thence westwardly with said property line to its intersection with the westerly property line of said parcel; thence northwardly with said property line and said property line extended to its intersection with the centerline of River Road; thence eastwardly with said centerline to its intersection with the westerly property line extended of parcel map 102; thence northwardly with said property line extended and said property line to its intersection with the northerly property line of said parcel; thence southeastwardly with said property line to the northerly property line of parcel 14 map 102; thence southeastwardly with said property line to its intersection with the southeasterly property line of said parcel; thence southwestwardly with said property line and said property line extended to the centerline of River Road; thence eastwardly with said centerline to its intersection with the centerline of Charlotte Pike; thence northeastwardly with said centerline to its intersection with the existing Urban Services District boundary line; thence in a northeastwardly and southeastwardly direction with said boundary line to the point of beginning. Parcel numbers refer to parcels as shown on the Metropolitan Planning Commission property map series 200 on June 18, 1976. (Bill 76-238, § 1, 11-22-76)

The present boundaries of the Urban Services Districts [shall] be extended so as to embrace and include the hereinafter described property:

Those lots and lands lying within the bounds of the Cedarwood Estates Subdivision, all of which is more particularly described by lines, words and figures on the attached sketch, which is attached to and made a part of this ordinance as though copied herein. (Bill No. 76-379, § 1, 1-18-77)

The present boundaries of the Urban Services District [shall] be extended as to embrace and include the hereinafter described property:

Beginning at a point on the present Urban Services District line, said point being the intersection of the centerline of Greens Lane with the westerly property line extended of parcel 316 map 49; thence northwardly with said line extended and said line to its intersection with southerly property line of said parcel, said point also being the northeasterly property corner of parcel 155 map 49; thence westwardly along the southerly property line of parcel 316 map 49 and continuing along the rear property lines of parcels 50 and 51 map 49-15 and 154 map 49 to a point, said point being the intersection of the southerly property line and the easterly property line of a portion of parcel 154 map 49, and also being the northwesterly corner of parcel 166 map 49; thence southwardly with the easterly property line of parcel 154 map 49 and said line extended to the centerline of Green Lane; thence westwardly with the centerline of Green Lane to its intersection with the centerline extended of Whites Creek Pike; thence northwestwardly with said centerline to its intersection with the northwesterly property line extended of parcel 154 map 49; thence northeastwardly with said line extended and said line to a point, said point being the intersection of the northwesterly property line of parcel 154 map 49 with the southwesterly property line of said parcel; thence northwestwardly with said line to a point, said point being the intersection of the southwesterly property line of parcel 154 map 49 with the southeasterly property line of said parcel, said point also being the northernmost corner of parcel 177 map 49; thence southwestwardly

along the southeasterly property line of parcel 154 map 49 and with said line extended to its intersection with the centerline of Whites Creek Pike; thence northwestwardly with said centerline to its intersection with the northwesterly property line extended of parcel 154 map 49, thence northeastwardly with said line extended and said line to a point, said point being the intersection of the northwesterly property line of parcel 154 map 49 with the southwesterly property line of said parcel; thence northwestwardly with said line to a point, said point being the intersection of the southwesterly property line of parcel 154 map 49 with the northerly property line of said parcel; thence eastwardly with said line to a point, said point being the intersection of the northerly property line of parcel 154 map 49 with the easterly property line of said parcel; thence southwardly with said line and continuing along the easterly property line of parcel 274 map 49 to a point, said point being the intersection of the easterly property line of parcel 274 map 49 with the southerly property line of said parcel; thence westwardly with said line to a point, said point being the intersection of the southerly property line of parcel 274 map 49 and the easterly property line of parcel 86 map 49-15; thence southwardly with said line and said line extended to the centerline of Green Lane; thence westwardly with the centerline of Green Lane to the point of beginning. Parcel numbers refer to parcels as shown on the Property Map and Records System of Davidson County, Tennessee, on December 1, 1986. (Bill No. 86-1565, § 1, 2-3-87)

The present boundaries of the Urban Services District shall be and hereby are extended to embrace and include the hereinafter described property:

Area One—Priest Point. Beginning at a point on the existing Urban Services District boundary, said point being the intersection of the centerline of Interstate 40 with the centerline of Stewart's Ferry Pike; thence southwardly with the centerline of Stewart's Ferry Pike to its intersection with the southerly property line extended of parcel 130 map 97; thence westwardly with said property line extended and said property line to its intersection with the southeasterly edge of the right-of-way of Blackwood Drive; thence northwestwardly along a line projected across the right-of-way of Blackwood Drive to the intersection of the northwesterly edge of the right-of-way with the southerly property line of parcel 35 map 97; thence westwardly with the said property line and continuing along the southerly property line of parcel 124 map 96-16 and said property line extended to its intersection with the existing Urban Services District boundary, said intersection being the point where the southerly property line extended of parcel 58 map 96-16 with the centerline of Fitzpatrick Road; thence northwardly with the existing Urban Services District boundary along the said centerline to its intersection with the centerline of Interstate 40; thence eastwardly along the said centerline with the existing Urban Services District boundary to the point of beginning. (Ord. 88-555, § 1 (part), 12-19-88)

Area Two—Airport—Edge-O-Lake—Antioch. Beginning at a point on the existing Urban Services District boundary, said point being the intersection of the centerline of Interstate 40 with the centerline of Elm Hill Pike; thence eastwardly with the centerline of Elm Hill Pike to its intersection with the easterly property line extended of parcel 4 map 121; thence southwardly with the said property line extended and the said property line extended to its intersection with the centerline of Couchville Pike; thence eastwardly with said centerline and said centerline extended to its intersection with the shoreline of Percy Priest Reservoir; thence generally southwardly and eastwardly with said shoreline to its intersection with the easterly property line extended of parcel 22 map 151; thence southwardly along said property line extended and said property line and continuing along the easterly property line of parcel 20 map 151 to its intersection with the southeasterly property line of said parcel; thence southwestwardly along said property line to its intersection with the southerly property line of said property; thence westwardly along said property line to its intersection with the easterly property line of parcel 18 map 151; thence southwardly along said property line to its intersection with the southeasterly property line of said parcel; thence southwestwardly along said property line to its intersection with the southwesterly property line of said parcel; thence northwestwardly along said property line to its intersection with the easterly property line of parcel 212 map 150; thence southwardly along said property line to its intersection with the southerly property line of said parcel; thence westwardly along said property line to its intersection with the easterly property line of parcel 171 map 150; thence southwardly along said property line and continuing along the easterly property line of parcel 149 map 150 to its intersection with the southerly property line of the last said parcel; thence westwardly along said property line and continuing along the southerly property line of parcel 176 map 150 to its intersection with the westerly property line of said parcel; thence northwardly along said property line to its intersection with the southerly property line of parcel 147 map 150; thence westwardly along said property line to its intersection with the easterly property line of parcel 186 map 150; thence southwardly along said property line and continuing along the easterly property line of parcel 144 map 150 to its intersection with the southerly property line of said parcel; thence westwardly along said property line to its intersection with the easterly property line of parcel 142 map 150;

thence southwardly along said property line and continuing along the easterly property line of parcel 190 map 150 to its intersection with the southeasterly property line of said parcel; thence southwestwardly and southwardly along said property line and said property line extended to its intersection with the centerline of Hamilton Church Road; thence westwardly along said centerline to its intersection with the easterly property line extended of parcel 195 map 164; thence southwardly along said property line to its intersection with the southerly property line of said parcel; thence westwardly along said property line to its intersection with the easterly property line of parcel 196 map 164; thence southwardly along said property line to its intersection with the southerly property line of said parcel; thence westwardly along said property line to its intersection with the southeasterly property line of parcel 69 map 164; thence southwestwardly along said property line and continuing along the southeasterly property lines of parcels 73 and 235 map 164 and the southeasterly property line of the last said parcel to its intersection with the northeasterly edge of the right-of-way of Murfreesboro Pike; thence southwestwardly along a line projected across the right-of-way of Murfreesboro Pike to the intersection of the southwesterly edge of the right-of-way with the southeasterly property line of parcel 31 map 164; thence southwestwardly along said property line and said property line extended to its intersection with the centerline of Mt. View Circle; thence southwardly and westwardly along said centerline to its intersection with the easterly property line extended of parcel 24 map 164; thence southwardly along said property line and continuing along the easterly property lines of parcels 22, 177, 21, 20, 19, 18, 239, 17 and 14 map 164 and the easterly property line of parcel 1 map 175 to its intersection with the northeasterly edge of the right-of-way of the Louisville and Nashville Railroad Company; thence along a line projected across said right-of-way to the intersection of the southwesterly edge of said right-of-way with the easterly property line of parcel 29 map 174; thence southwardly along said property line to its intersection with the southerly property line of said parcel; thence westwardly along said property line to its intersection with the easterly property line of parcel 32 map 174; thence southwardly along said property line and continuing along the easterly property lines of parcels 68 and 67 and the last said property line extended to its intersection with the centerline of Interstate 24; thence northwestwardly along said centerline to its intersection with the existing Urban Services District boundary; thence generally northwardly along the said Urban Services District boundary to the point of beginning. (Ord. 89-720 § 1, 4-20-89; Ord. 88-555 § 1 (part), 12-19-88)

Area Three—Blue Hole Road. Beginning at a point on the existing Urban Services District boundary, said point being the northeasterly corner of condominium map 173-4-A; thence southwardly along the easterly line of said condominium map to its intersection with the southerly line of said condominium map; thence westwardly along said southerly line across the right-of-way of Blue Hole Road to its intersection with the westerly property line of parcel 47 map 173; thence southwardly along said property line to its intersection with the southerly property line of said parcel; thence eastwardly along said property line and said property line extended to its intersection with the centerline of Blue Hole Road; thence southeastwardly along said centerline to its intersection with the northwesterly property line extended of parcel 46 map 173; thence southwestwardly along said property line to its intersection with the southerly property line of parcel 165 map 173; thence westwardly along said property line to its intersection with the westerly property line of said parcel; thence northwardly along said property line and continuing along the westerly property line of condominium map 173-4-A to its intersection with the existing Urban Services District boundary; thence eastwardly along the existing Urban Services District boundary to the point of beginning. All parcel and map numbers used in the descriptions of Areas One, Two and Three refer to parcels as shown on the Metropolitan Planning Commission property map series 200 on September 27, 1988. All property included in Areas One, Two and Three is shown on the attached map, which is hereby referenced and made a part hereof.* (Ord. 88-555 § 1 (part), 12-9-88)

*** Editor's Note—**The above-mentioned map is not set out in this code but is on file in the office of the metropolitan clerk.

The boundaries of the Urban Services District shall be and hereby are extended to embrace and include the hereinafter described property:

Area One—Braewood. Beginning at a point on the existing Urban Services District boundary, said point being the intersection of the centerline of the Cumberland River with the northeasterly property line extended of parcel 164 map 52-9; thence eastwardly with the centerline of the Cumberland River to its intersection with the westerly property line extended of parcel 10 map 52; thence southwardly with said property line extended and said properly line to its intersection with the existing Urban Services District boundary, said intersection being the intersection of said westerly property line with the westerly property line of parcel 72 map 62; thence southwardly, westwardly and generally northwestwardly with the existing Urban Services District boundary to the point of beginning.

Area Two—St. Mary's Medical Center. Beginning at a point on the existing Urban Services District boundary, said point being the intersection of the centerline of Barton Lane with the westerly property line extended of parcel 145 map 62; thence northwardly, eastwardly and northwardly with said property line extended and property line to its intersection with the northerly property line of said parcel; thence eastwardly along said property line to its intersection with the westerly property line of parcel 139 map 62; thence northwardly along said property line to its intersection with the northerly property line of said parcel; thence southwardly, westwardly and southwardly with said property line to its intersection with the existing Urban Services District boundary, said intersection also being the intersection of said easterly property line with the northerly property line of parcel 41.1 map 62; thence generally westwardly with the existing Urban Services District boundary to the point of beginning.

Area Three—Western Hills Drive. Beginning at a point on the existing Urban Services District boundary, said point being the intersection of the northerly property line of parcel 42 map 62 with the southwesterly property line of parcel 2 map 62-7; thence northwestwardly with said property line to its intersection with the northwesterly property line of said parcel; thence northeastwardly with said property line and said property line extended to its intersection with the northeasterly margin of the right-of-way of Western Hills Drive; thence southeastwardly with said margin to its intersection with the northwesterly property line of parcel 3 map 62-7; thence northeastwardly with said property line to its intersection with the northeasterly property line of said parcel; thence southeastwardly with said property line to its intersection with the existing Urban Services District boundary, said intersection also being the intersection of said northeasterly property line with the northwesterly property line of parcel 4 map 62-7; thence southwestwardly, southeastwardly and westwardly with the existing Urban Services District boundary to the point of beginning. All parcel and map numbers used in the descriptions of Areas One, Two and Three refer to parcels as shown on the Metropolitan Planning Commission property map series 200 on December 6, 1988. All property included in Areas One, Two and Three is shown on the attached map, which is hereby referenced and made a part hereof.* (Ord. 89-715 § 1, 4-20-89)

*** Editor's note—**The above-mentioned map is not set out in this Code but is on file in the office of the metropolitan clerk.

The boundaries of the Urban Services District shall be and hereby are contracted so as to include in the General Services District the hereinafter described property:

Beginning at a point on the Urban Services District boundary, said point being the intersection of the shoreline of Cheek Lake with the westerly ordinary high-water line of the Cumberland River; thence in a southwardly direction with said ordinary high-water line to the intersection with the northerly property line extended of parcel 21 map 84; thence in an eastwardly direction with said property line extended to the easterly ordinary high-water line of the Cumberland River; thence northwardly with said ordinary high-water line to the intersection with the west right-of-way of Briley Parkway; thence northwardly with the west right-of-way of Briley Parkway to the southerly right-of-way of McGavock Pike; thence westwardly with said southerly right-of-way to the intersection with the westerly property line of parcel 17 map 73; thence southwardly to the intersection with the south property line of parcel 134 map 62-13; thence westwardly with said property line to the intersection of the east ordinary high-water line; thence northwardly and northeastwardly with said line to the intersection with the existing Urban Services District boundary which is the westerly property line of parcel 10 map 52; thence northwardly, westwardly, southwestwardly and westwardly with said boundary to the point of beginning. All parcel and map numbers used in the descriptions refer to parcels as shown on the Metropolitan Planning Commission property map 1O to 400N scale official property line maps for Davidson County on October 6, 1993. (Ord. 93-846 § 1, 12-14-93)

Editor's note—Ord. 93-846 shall expire and have no further force and effect on December 31, 2003.

The present boundaries of the Urban Services District shall be extended so as to embrace and include the hereinafter described property:

The lots and lands located south of Briley Parkway and west of Dickerson Pike, located on map 50 and listed as parcels 54, 90, 141, and 147, all of which is more particularly described by lines, words and figures on the attached map identified as "Exhibit A", which is hereby referenced and made a part hereof.

All parcel and map numbers used in this description refer to parcels as shown on Map No. 50 of the Official Property Identification Maps of the Metropolitan Government of Nashville and Davidson County dated February 7, 2002. (Ord. BL2002-1180 § 1, 10-3-2002)

*** Editor's note—**The above-mentioned map and the list of properties is not set out in this Code but is on file in the office of the metropolitan clerk.

The present boundaries of the Urban Services District shall be extended so as to embrace and include the hereinafter described property:

The lots and lands located in Council District 32 east of Interstate 24 included on the list attached as "Exhibit A," all of which is more particularly described by lines,

words and figures on the attached map identified as "Exhibit B", which are hereby referenced and made a part hereof.

All parcel and map numbers used in this description refer to parcels as shown on Map Nos. 164, 165, 174, 175, 176, and 183 of the Official Property Identification Maps of The Metropolitan Government of Nashville and Davidson County. (Ord. No. BL2005-768, § 1, 10-18-2005)

*** Editor's note—**The above-mentioned map and the list of properties is not set out in this Code but is on file in the office of the metropolitan clerk.

The present boundaries of the Urban Services District shall be extended so as to embrace and include the hereinafter described property:

The lots and lands located on Whites Creek Pike included on the attached "Exhibit A" incorporated herein, all of which is more particularly described by lines, words and figures on the attached map identified as "Exhibit B", which is hereby referenced and made a part hereof.

All parcel and map numbers used in this description refer to parcels as shown on Map Nos. 51 of the Official Property Identification Maps of The Metropolitan Government of Nashville and Davidson County dated January 1, 2009. (Ord. No. BL2009-580, § 1, 12-18-2009; eff. 1-14-2010)

*** Editor's note—**The above-mentioned map and the list of properties is not set out in this Code but is on file in the office of the metropolitan clerk.

The Metropolitan County Council hereby adopts a plan of services, a copy of which is attached hereto as "Exhibit A", for the extension of the boundaries of the Urban Services District within the jurisdiction of the Metropolitan Government of Nashville and Davidson County to include the areas described as follows:

The lots and lands located within the Golden Oak subdivision on Saunders avenue included on the attached "Exhibit B" incorporated herein, all of which is more particularly described by lines, words and figures on the attached map identified as "Exhibit C", which is hereby referenced and made a part hereof. (Ord. No. BL2009-581, § 1, 12-18-2009; eff. 1-14-2010)

*** Editor's note—**The above-mentioned map and the list of properties is not set out in this Code but is on file in the office of the metropolitan clerk.

The present boundaries of the Urban Services District shall be extended so as to embrace and include the hereinafter described property:

The lots and lands located within the Golden Oak subdivision on Saunders Avenue included on the attached "Exhibit A" incorporated herein, all of which is more particularly described by lines, words and figures on the attached map identified as "Exhibit B", which is hereby referenced and made a part hereof.

All parcel and map numbers used in this description refer to parcels as shown on Map Nos. 51 of the Official Property Identification Maps of The Metropolitan Government of Nashville and Davidson County dated January 1, 2009. (Ord. No. BL2009-582, § 1, 12-18-2009; eff. 1-14-2010)

*** Editor's note—**The above-mentioned map and the list of properties is not set out in this Code but is on file in the office of the metropolitan clerk.

The Metropolitan County Council hereby adopts a plan of services, a copy of which is attached hereto as "Exhibit A", for the extension of the boundaries of the Urban Services District within the jurisdiction of the Metropolitan Government of Nashville and Davidson County to include the areas described as follows:

The lots and lands located in the Bellevue area along Old Hickory Boulevard between Interstate 40 and Highway 70 South included on the attached "Exhibit B" incorporated herein, all of which is more particularly described by lines, words and figures on the attached map identified as "Exhibit C", which is hereby referenced and made a part hereof. (Amdt. 1 to Ord. BL2010-758, Exh. B; Ord. BL2010-758 § 1, 10-20-2010)

*** Editor's note—**The above-mentioned map and the list of properties is not set out in this Code but is on file in the office of the metropolitan clerk.

The present boundaries of the Urban Services District shall be extended so as to embrace and include the hereinafter described property:

The lots and lands located in the Bellevue area along Old Hickory Boulevard between Interstate 40 and Highway 70 South included on the attached "Exhibit A" incorporated herein, all of which is more particular described by lines, words and figures on the attached map identified as "Exhibit B", which is hereby referenced and made a part hereof.

All parcel and map numbers used in this description refer to parcels as shown on Map Nos. 114, 128, 129, 142, and 143 of the Official Property Identification Maps of the Metropolitan Government of Nashville and Davidson County dated January 1, 2010. (Amdt. 1 to Ord. BL2010-759, Exh. A; Ord. BL2010-759 § 1, 10-20-2010)

*** Editor's note—**The above-mentioned map and the list of properties is not set out in this Code but is on file in the office of the metropolitan clerk.

That the present boundaries of the urban Services District shall be extended so as to embrace and include the hereinafter described property:

The lots and lands located along Highway 70 South included on the attached "Exhibit A" incorporated herein,

all of which is more particularly described by lines, words and figures on the attached map identified as "Exhibit B", which is hereby referenced and made a part hereof.

All parcel and map numbers used in this description refer to parcels as shown on Map No. 142 of the Official Property Identification Maps of The Metropolitan Government of Nashville and Davidson County dated January 1, 2010. (Ord. BL2011-861 § 1, 4-5-2011)

* **Editorial Note:** The above-mentioned map and the list of properties is not set out in this Code but is on file in the office of the metropolitan clerk.

Appendix Two. Description of Thirty-Five Metropolitan Councilmanic Districts [and Nine School Districts]*

Council District 1

Beginning at the intersection of the Davidson, Cheatham, and Robertson County Lines, proceed east along the Davidson-Robertson County Line to the intersection with Browns Lake Road, then proceed south along Browns Lake Road to the intersection with Ivey Point Road, then proceed southeast along Ivey Point Road to the intersection with Union Hill Road, then proceed southwest along Union Hill Road to the intersection with Crocker Springs Road, then proceed south along Crocker Springs Road to the intersection with Lickton Pike, then proceed southwest along Lickton Pike to the intersection with Clay Lick Road, then proceed northwest along Clay Lick Road to the intersection with Whites Creek Pike, then proceed southeast along Whites Creek Pike to the intersection with Old Hickory Boulevard, then proceed west along Old Hickory Boulevard to the intersection with Earthman Fork Creek, then proceed southwest along Earthman Fork Creek to the intersection with Old Hickory Boulevard, then proceed northwest along Old Hickory Boulevard to the intersection with Clarksville Pike, then proceed southeast along Clarksville Pike to the intersection with Lloyd Road, then proceed northeast along Lloyd Road to the intersection with Buena Vista Pike, then proceed south along Buena Vista Pike to the intersection with Whites Creek, then proceed southwest along Whites Creek to the intersection with the Tennessee Central Railroad, then proceed southeast along the Tennessee Central Railroad to the intersection with the Cumberland River, then proceed southwest along the Cumberland River to the intersection with the Davidson-Cheatham County Line, then proceed north along the Davidson-Cheatham County Line to the beginning point, the intersection of the Davidson, Cheatham, and Robertson County Lines.

Council District 2

Beginning at the intersection of the Tennessee Central Railroad and Whites Creek, proceed northeast along Whites Creek to the intersection with Buena Vista Pike, then proceed northwest along Buena Vista Pike to the intersection with Kings Lane, then proceed northeast approximately 130 feet to the intersection with Whites Creek, then proceed north along Whites Creek to the intersection with Ewing Creek, then proceed northeast along Ewing Creek to the intersection with Gwynnwood Drive, then proceed to a point approximately 1,200 feet along Ewing Creek, then proceed northeast to the intersection with Ewing Lane, then proceed northwest approximately 225 feet to the intersection with Ewing Creek and the north fork of Ewing Creek, then proceed east along Ewing Creek to the intersection with the west side of Interstate 24, then proceed southeast along Interstate 24 to Ewing Creek Lane, then proceed east along Ewing Creek Lane to the intersection with the east side of Interstate 24, then proceed northwest along Interstate 24 to the intersection with Ewing Creek, then proceed east along Ewing Creek to the intersection with Interstate 65, then proceed northeast along Interstate 65 to the intersection with Dickerson Pike, then proceed south along Dickerson Pike to the intersection with Martin Avenue, then proceed west along Martin Avenue to the intersection with #1078 Alley, then proceed southwest along #1078 Alley to the intersection with Pages Branch, then proceed west along Pages Branch to the intersection with Grizzard Avenue, then proceed west along Grizzard Avenue to the intersection with #1071 Alley, then proceed south along #1071 Alley to the intersection with #1072 Alley, then proceed west along #1072 Alley to the intersection with Tarpley Avenue, then proceed south along Tarpley Avenue to the intersection with a ramp of Interstate 65, then proceed northwest along the ramp to the intersection with Interstate 65, then proceed south along Interstate 65 to the intersection with Dominican Drive, then proceed northwest along Dominican Drive to the intersection with Delta Avenue, then proceed south along Delta Avenue to the intersection with Clay Street, then proceed southwest along Clay Street to the intersection with 18th Avenue North, then proceed northwest along 18th Avenue North to the intersection with Clarksville Pike, then proceed northwest along Clarksville Pike to the intersection with the Cumberland River, then proceed southwest along the Cumberland River to the intersection with the Tennessee Central Railroad, then proceed west along the Tennessee Central Railroad to the beginning point, the intersection with Whites Creek.

Council District 3

Beginning at the intersection of Browns Lake Road and the Davidson-Robertson County Line, proceed east along the Davidson-Robertson County Line to the intersection with Highland Avenue and the corporate boundary of the City of Ridgetop, then proceed southeast along the corporate boundary of the City of Ridgetop to the intersection with the Louisville and Nashville Railroad, then proceed south along the Louisville and Nashville Railroad to the intersection with Baker Station Road,

* **Editorial Note:** The descriptions of the councilmanic districts given in this appendix were originally promulgated in Bill No. 81-701, adopted Oct. 6, 1981. Descriptions of Councilmanic Districts 1—35 and School Districts 1—9 were entirely amended in the redistricting plan adopted by council on January 18, 2022 [Ord. BL2021-1052].

then proceed west along Baker Station Road to the intersection with Old Baker Road, then proceed southeast

along Old Baker Road to the intersection with Baker Road, then proceed southeast along Baker Road to the intersection with Old Baker Road, then proceed southeast along Old Baker Road to the intersection with Baker Road, then proceed southeast along Baker Road to the intersection with Freeman Hollow Road, then proceed southwest along Freeman Hollow Road to the intersection with Lickton Pike, then proceed west along Lickton Pike to the intersection with Lower Walkers Creek Road, then proceed southwest along Lower Walkers Creek Road to the intersection with Union Hill Road, then proceed southeast along Union Hill Road to the intersection with Dry Creek Road, then proceed southeast along Dry Creek Road to the intersection with Old Dickerson Pike, then proceed southwest along Old Dickerson Pike to the intersection with Campbell Road, then proceed east along Campbell Road to the intersection with West Campbell Road, then proceed south along West Campbell Road to the intersection with Apple Valley Road, then proceed southeast along Apple Valley Road to the intersection with Interstate 65, then proceed southwest along Interstate 65 to the intersection with Old Hickory Boulevard, then proceed northwest along Old Hickory Boulevard to the intersection with Dickerson Pike, then proceed south along Dickerson Pike to the intersection with Interstate 65, then proceed southwest along Interstate 65 to the intersection with Ewing Creek, then proceed west along Ewing Creek to the intersection with the east side of Interstate 24, then proceed southeast along Interstate 24 to the intersection with Ewing Creek Lane, then proceed west along Ewing Creek Lane to the intersection with the west side of Interstate 24, then proceed northwest along Interstate 24 to the intersection with Ewing Creek, then proceed west along Ewing Creek to the intersection with the north fork of Ewing Creek, then proceed southeast approximately 225 feet to the intersection with Ewing Lane, then proceed southwest approximately 510 feet to the intersection with Ewing Creek, then proceed southwest along Ewing Creek to the intersection with Whites Creek, then proceed south along Whites Creek approximately 745 feet, then proceed southwest approximately 130 feet to the intersection with Kings Lane and Buena Vista Pike, then proceed north along Buena Vista Pike to the intersection with Lloyd Road, then proceed west along Lloyd Road to the intersection with Clarksville Pike, then proceed northwest along Clarksville Pike to the intersection with Old Hickory Boulevard, then proceed north along Old Hickory Boulevard to the intersection with Earthman Fork Creek, then proceed southwest along Earthman Fork Creek to the intersection with Old Hickory Boulevard, then proceed east along Old Hickory Boulevard to the intersection with Whites Creek Pike, then proceed north along Whites Creek Pike to the intersection with Union Hill Road, then proceed east along Union Hill Road to the intersection with Clay Lick Road, then proceed east along Clay Lick Road to the intersection with Lickton Pike, then proceed northeast along Lickton Pike to the intersection with Crocker Springs Road, then proceed northwest along Crocker Springs Road to the intersection with Union Hill Road, then proceed east along Union Hill Road to the intersection with Ivey Point Road, then proceed north along Ivey Point Road to the intersection with Browns Lake Road, then proceed northwest along Browns Lake Road to the beginning point, the intersection with the Davidson-Robertson County Line.

Council District 4

Beginning at the intersection of Franklin Pike Circle and Hill Road, proceed east along Hill Road to an intersection with Maxwell Crossing, then proceed northeast along Maxwell Crossing to an intersection with an unnamed stream, then proceed east along the unnamed stream to the intersection with Seven Mile Creek, then proceed south approximately 2,280 feet along Seven Mile Creek to an intersection with an unnamed stream, then proceed east along the unnamed stream to an intersection with Edmondson Pike, then proceed south along Edmondson Pike to an intersection with Old Hickory Boulevard, then proceed east along Old Hickory Boulevard to an intersection with Nolensville Pike, then proceed south along Nolensville Pike to an intersection with the Davidson-Williamson County Line, then proceed southwest along the Davidson-Williamson County Line to an intersection with Interstate 65, then proceed north along Interstate 65 to an intersection with Franklin Pike Circle, then proceed east along Franklin Pike Circle to the beginning point, the intersection with Hill Road.

Council District 5

Beginning at the intersection of a ramp of Interstate 65 and Tarpley Avenue, proceed north along Tarpley Avenue to the intersection with #1072 Alley, then proceed east along #1072 Alley to the intersection with #1071 Alley, then proceed north along #1071 Alley to the intersection with Grizzard Avenue, then proceed east along Grizzard Avenue to the intersection with Pages Branch, then proceed northeast along Pages Branch to the intersection with #1078 Alley, then proceed northeast to the intersection with Martin Avenue, then proceed east along Martin Avenue to the intersection with Dickerson Pike, then proceed southwest along Dickerson Pike approximately 30 feet to a point, then proceed east to the intersection with Sultana Avenue, then proceed east to the intersection with Donald Street and Gerald Street, then proceed east to the intersection with Jones Avenue, then proceed northeast to the intersection with Ellington Parkway, then proceed southeast to the intersection with the Louisville

and Nashville Railroad, then proceed southwest along the Louisville and Nashville Railroad to the intersection with Maynor Avenue, then proceed southeast along Maynor Avenue to the intersection with Gallatin Pike, then proceed southwest along Gallatin Pike to the intersection with Finn Street, then proceed northwest along Finn Street to the intersection with #277 Alley, then proceed southwest along #277 Alley to the intersection with North 6th Street, then proceed south along North 6th Street to the intersection with Main Street, then proceed southwest along Main Street to the intersection with the Cumberland River, then proceed northwest along the Cumberland River to the intersection with Interstate 65, then proceed east along Interstate 65 to the intersection with a ramp of Interstate 65, then proceed southeast along the ramp to the beginning point, the intersection with Tarpley Avenue.

Council District 6

Beginning at the intersection of Gallatin Avenue and Straightaway Avenue, proceed east along Straightaway Avenue to the intersection with Porter Road, then proceed southwest along Porter Road to the intersection with Carter Avenue, then proceed east along Carter Avenue to the intersection with Rosebank Avenue, then proceed north along Rosebank Avenue to the intersection with Colbert Drive, then proceed east along Colbert Drive to the intersection with Shadow Lane, then proceed north along Shadow Lane to the intersection with Airpark Drive, then proceed northwest along Airpark Drive to the intersection with Highview Drive, then proceed northeast along Highview Drive to the intersection with Lethia Drive, then proceed north along Lethia Drive to its terminus, then proceed northeast approximately 650 feet to the intersection with an unnamed stream, then proceed northeast along the unnamed stream to the intersection with Coopers Creek, then proceed east along Coopers Creek to the intersection with the Cumberland River, then proceed southeast along the Cumberland River to the intersection with Main Street, then proceed northeast along Main Street to the intersection with North 6th Street, then proceed northwest along North 6th Street to the intersection with #277 Alley, then proceed northeast along #277 Alley to the intersection with Finn Street, then proceed southeast along Finn Street to the intersection with Main Street, then proceed northeast along Main Street to the intersection with Gallatin Avenue, then proceed northeast along Gallatin Avenue to the beginning point, the intersection with Straightaway Avenue.

Council District 7

Beginning at the intersection of Gallatin Pike and Neelys Bend Road, proceed east along Neelys Bend Road to the intersection with Idlewild Drive, then proceed south along Idelwild Drive to the intersection with Geisen Drive, then proceed south along Geisen Drive to its terminus, then proceed south approximately 940 feet to the intersection with the Cumberland River, then proceed south along the Cumberland River to the intersection with Coopers Creek, then proceed west along Coopers Creek to the intersection with an unnamed creek, then proceed south approximately 1,500 feet along the unnamed creek to a point, then proceed southwest approximately 350 feet to the intersection with Lethia Drive, then proceed south along Lethia Drive to the intersection with Highview Drive, then proceed west along Highview Drive to the intersection with Airpark Drive, then proceed southeast along Airpark Drive to the intersection with Shadow Lane, then proceed south along Shadow Lane to the intersection with Colbert Drive, then proceed west along Colbert Drive to the intersection with Rosebank Avenue, then proceed south along Rosebank Avenue to the intersection with Carter Avenue, then proceed west along Carter Avenue to the intersection with Porter Road, then proceed northeast along Porter Road to the intersection with Straightway Avenue, then proceed west along Straightway Avenue to the intersection with Gallatin Pike, then proceed northeast along Gallatin Pike to the beginning point, the intersection with Neelys Bend Road.

Council District 8

Beginning at the intersection of Dickerson Pike and Old Hickory Boulevard, proceed east along Old Hickory Boulevard to the intersection with Interstate 65, then proceed north along Interstate 65 to the intersection with Apple Valley Road, then proceed east along Apple Valley Road to the intersection with Connare Drive, then proceed south along Connare Drive to the intersection with One Mile Parkway, then proceed east along One Mile Parkway to the intersection with Gallatin Pike, then proceed south along Gallatin Pike to the intersection with Maynor Avenue, then proceed west along Maynor Avenue to the intersection with the Louisville and Nashville Railroad, then proceed northeast along the Louisville and Nashville Railroad to a point approximately 450 feet southwest of a Tennessee Valley Authority power line, then proceed northwest approximately 2,800 feet to the intersection with the Tennessee Valley Authority power line, then proceed west along the Tennessee Valley Authority power line to Dickerson Pike, then proceed north along Dickerson Pike to the beginning point, the intersection with Old Hickory Boulevard.

Council District 9

Beginning at the intersection of the Louisville and Nashville Railroad and Dry Creek, proceed east along Dry Creek to the intersection with Myatt Drive, then proceed northeast approximately 1,700 feet to the intersection with the Cumberland River, then proceed south

along the Cumberland River to the intersection with Gibson Creek, then proceed north approximately 500 feet to the intersection with Geisen Drive, then proceed north along Geisen Drive to the intersection with Idlewild Drive, then proceed north along Idlewild Drive to the intersection with Neelys Bend Road, then proceed northwest along Neelys Bend Road to the intersection with Gallatin Pike, then proceed north along Gallatin Pike to the intersection with the Louisville and Nashville Railroad, then proceed northeast along the Louisville and Nashville Railroad to the beginning point, the intersection with Dry Creek.

Council District 10

Beginning at the intersection of Highland Avenue and the Davidson-Robertson County Line, proceed northeast along the Davidson-Robertson County Line to the intersection with the Davidson-Sumner County Line, then proceed southeast along the Davidson-Sumner County Line to the intersection with the Cumberland River, then proceed west along the Cumberland River to a point approximately 180 feet south of the intersection of the Cumberland River and Dry Creek, then proceed southwest approximately 1,700 feet to the intersection with Dry Creek, then proceed west along Dry Creek to the intersection with the Louisville and Nashville Railroad, then proceed southwest along the Louisville and Nashville Railroad to the intersection with Gallatin Pike, then proceed north along Gallatin Pike to the intersection with One Mile Parkway, then proceed west along One Mile Parkway to the intersection with Connare Drive, then proceed north along Connare Drive to the intersection with Apple Valley Road, then proceed west along Apple Valley Road to the intersection with West Campbell Road, then proceed north along West Campbell Road to the intersection with Campbell Road, then proceed west along Campbell Road to the intersection with Old Dickerson Pike, then proceed northeast along Old Dickerson Pike to the intersection with Dry Creek Road, then proceed northwest along Dry Creek Road to the intersection with Brick Church Pike, then proceed west along Brick Church Pike to the intersection with Union Hill Road, then proceed northwest along Union Hill Road to the intersection with Lower Walkers Creek Road, then proceed northeast along Lower Walkers Creek Road to the intersection with Lickton Pike, then proceed east along Lickton Pike to the intersection with Freeman Hollow Road, then proceed north along Freeman Hollow Road to the intersection with Baker Road, then proceed northwest along Baker Road to the intersection with Old Baker Road, then proceed northeast along Old Baker Road to the intersection with Baker Road, then proceed northwest along Baker Road to the intersection with Old Baker Road, then proceed north along Old Baker Road to the intersection with Baker Station Road, then proceed east along Baker Station Road to the intersection with the Louisville and Nashville Railroad, then proceed northwest along the Louisville and Nashville Railroad to the intersection with the corporate boundary of the City of Ridgetop, then proceed northwest along the corporate boundary of the City of Ridgetop to the beginning point, the intersection with Highland Avenue and the Davidson-Robertson County Line.

Council District 11

Beginning at the intersection of the Cumberland River and the Davidson-Sumner County Line, proceed southeast along the Davidson-Sumner County Line to the intersection with the Davidson-Wilson County Line, then proceed south along the Davidson-Wilson County Line to the intersection with Chandler Road, then proceed west along Chandler Road to the intersection with the Tennessee Central Railroad, then continue west along the Tennessee Central Railroad to the intersection with Tulip Grove Road, then proceed north along Tulip Grove Road to the intersection with Lebanon Pike, then proceed west along Lebanon Pike to the intersection with Trenton Court, then proceed southwest along Trenton Court to the intersection with Trenton Drive, then proceed west along Trenton Drive to the intersection with Albany Drive, then proceed south along Albany Drive to the intersection with Andrew Jackson Parkway, then proceed southwest along Andrew Jackson Parkway to the intersection with Old Hickory Boulevard, then proceed northwest along Old Hickory Boulevard to the intersection with Rachels Lane, then proceed north approximately 315 feet to a point on Old Hickory Boulevard, then proceed west approximately 570 feet to a point on U Creek, then proceed west along U Creek to the intersection with the Cumberland River, then proceed north along the Cumberland River to the beginning point, the intersection with the Davidson-Sumner County Line.

Council District 12

Beginning at the intersection of Lebanon Pike and Tulip Grove Road, proceed south along Tulip Grove Road to the intersection with the Tennessee Central Railroad, then proceed east along the Tennessee Central Railroad to the intersection with Chandler Road, then proceed east along Chandler Road to the intersection with the Davidson-Wilson County Line, then proceed southeast along the Davidson-Wilson County Line to a point approximately 3,050 feet south of Alvin Sperry Road to the intersection with the eastern shoreline of the J Percy Priest Reservoir, then proceed north along the shoreline of the J Percy Priest Reservoir to the intersection with Old Hickory Boulevard, then proceed north along Old Hickory Boulevard to the intersection with Andrew Jackson Way, then proceed north along Andrew

Jackson Way to the intersection with Andrew Jackson Parkway, then proceed north along Andrew Jackson Parkway to the intersection with Albany Drive, then proceed north along Albany Drive to the intersection with Trenton Drive, then proceed east along Trenton Drive to the intersection with Trenton Court, then proceed northeast along Trenton Court to the intersection with Lebanon Pike, then proceed east along Lebanon Pike to the beginning point, the intersection with Tulip Grove Road.

Council District 13

Beginning at the intersection of Mill Creek and Interstate 40, proceed east along Interstate 40 to the intersection with Stewarts Ferry Pike, then proceed southeast along Stewarts Ferry Pike to the intersection with Bell Road, then proceed south on Bell Road to a point approximately 1,265 feet south of Elm Hill Pike, then proceed east to the intersection with the shoreline of the J Percy Priest Reservoir, then proceed south along the shoreline of the J Percy Priest Reservoir to the intersection with Couchville Pike, then proceed west along Couchville Pike to the intersection with Pleasant Hill Road, then proceed north along Pleasant Hill Road to the intersection with Pulley Road, then proceed west along Pulley Road to the intersection with McCrory Creek Road, then proceed south along McCrory Creek Road to the intersection with Old Murfreesboro Pike, then proceed southeast along Old Murfreesboro Pike to the intersection with Town Park Drive, then proceed south along Town Park Drive to the intersection with Murfreesboro Pike, then proceed northwest along Murfreesboro Pike to the intersection with Donelson Pike, then proceed south along Donelson Pike to the intersection with Harding Place, then proceed east along Harding Place to the intersection with Bush Road, then proceed southeast on Bush Road to the intersection with the Louisville and Nashville Railroad, then proceed west along the Louisville and Nashville Railroad to the intersection with an unnamed creek, then proceed north along the unnamed creek to the intersection with Mill Creek, then proceed southwest along Mill Creek to the intersection with the Louisville and Nashville Railroad, then proceed southwest along the Louisville and Nashville Railroad to the intersection with the northbound line of the Louisville and Nashville Railroad, then proceed northwest along the Louisville and Nashville Railroad to the intersection with Ezell Pike, then proceed north along Ezell Pike to the intersection with Harding Place, then proceed west along Harding Place to the intersection with Interstate 24, then proceed northwest along Interstate 24 to the intersection with Seven Mile Creek, then proceed northeast along Seven Mile Creek to the intersection with Mill Creek, then proceed north along Mill Creek to the intersection with Briley Parkway, then proceed northeast along Briley Parkway to the intersection with Murfreesboro Pike, then proceed northwest along Murfreesboro Pike to the intersection with Mill Creek, then proceed north along Mill Creek to the beginning point, the intersection with Interstate 40.

Council District 14

Beginning at the intersection of the Stones River and the Cumberland River, proceed northeast along the Cumberland River to the intersection with U Creek, then proceed northeast along U Creek to a point approximately 470 feet south of Tonya Court, then proceed east to the intersection with Old Hickory Boulevard, then proceed south along Old Hickory Boulevard to the shoreline of the J Percy Priest Reservoir, then proceed southwest across the J Percy Priest Reservoir to the shoreline, then proceed north along the shoreline of the J Percy Priest Reservoir to the intersection with Bell Road, then proceed north along Bell Road to the intersection with Stewarts Ferry Pike, then proceed northwest along Stewarts Ferry Pike to the intersection with Interstate 40, then proceed southwest along Interstate 40 to the intersection with Elm Hill Pike, then proceed northwest along Elm Hill Pike to the intersection with Colfax Drive, then proceed north along Colfax Drive to the intersection with Emery Drive, then proceed west along Emery Drive to the intersection with Donelson Pike, then proceed north along Donelson Pike to the intersection with McCampbell Avenue, then proceed northeast along McCampbell Avenue to the intersection with Stewarts Ferry Pike, then proceed northwest along Stewarts Ferry Pike to the intersection with Lebanon Pike, then proceed northeast along Lebanon Pike to the intersection with Guill Court, then proceed northwest along Guill Court to the intersection with the Stones River, then proceed northeast along the Stones River to the beginning point, the intersection with the Cumberland River.

Council District 15

Beginning at the intersection of Gibson Creek and the Cumberland River, proceed east along the Cumberland River to the intersection with the Stones River, then proceed south along the Stones River to the intersection with Guill Court, then proceed south along Guill Court to the intersection with Lebanon Pike, then proceed southwest along Lebanon Pike to the intersection with Stewarts Ferry Pike, then proceed southeast along Stewarts Ferry Pike to the intersection with McCampbell Avenue, then proceed southwest along McCampbell Avenue to the intersection with Donelson Pike, then proceed south along Donelson Pike to the intersection with Emery Drive, then proceed east along Emery Drive to the intersection with Colfax Drive, then proceed south along Colfax Drive to the intersection with Elm Hill Pike, then proceed southeast along Elm Hill Pike to the intersection

with Interstate 40, then proceed southwest along Interstate 40 to the intersection with Mill Creek, then proceed south along Mill Creek to the intersection with Murfreesboro Pike, then proceed northwest along Murfreesboro Pike to the intersection with Spence Lane, then proceed northeast along Spence Lane to the intersection with Lebanon Pike, then proceed west along Lebanon Pike to the intersection with the Louisville and Nashville Railroad, then proceed north along the Louisville and Nashville Railroad to the intersection with the Cumberland River, then proceed east along the Cumberland River to the beginning point, the intersection with Gibson Creek.

Council District 16

Beginning at the intersection of Interstate 65 and Thompson Lane, proceed east along Thompson Lane to the intersection with the Louisville and Nashville Railroad, then proceed north along the Louisville and Nashville Railroad to the intersection with Interstate 440, then proceed east along Interstate 440 to the intersection with Interstate 24, then proceed north along Interstate 24 to the intersection with Murfreesboro Pike, then proceed southeast along Murfreesboro Pike to the intersection with Briley Parkway, then proceed southwest along Briley Parkway to the intersection with Mill Creek, then proceed south along Mill Creek to the intersection with Seven Mile Creek, then proceed southwest along Seven Mile Creek to the intersection with Interstate 24, then proceed southeast along Interstate 24 to the intersection with the Louisville and Nashville Railroad, then proceed west along the Louisville and Nashville Railroad to the intersection with Nolensville Pike, then proceed north along Nolensville Pike to the intersection with Allied Drive, then proceed west along Allied Drive to the intersection with Keystone Avenue, then proceed north along Keystone Ave to the intersection with Veritas Street, then proceed west along Veritas Street to the intersection with Trousdale Drive, then proceed south along Trousdale Drive to the intersection with the Louisville and Nashville Railroad, then proceed southwest along the Louisville and Nashville Railroad to the intersection with Harding Place, then proceed northwest along Harding Place to the intersection with Interstate 65, then proceed north along Interstate 65 to the beginning point, the intersection with Thompson Lane.

Council District 17

Beginning at the intersection of 21st Avenue South and Edgehill Avenue, proceed east along Edgehill Avenue to the intersection with 13th Avenue South, then proceed north along 13th Avenue South to the intersection with South Street, then proceed east along South Street to the intersection with 8th Avenue South, then proceed north along 8th Avenue South to the intersection with Interstate 40, then proceed northeast along Interstate 40 to the intersection with Lafayette Street, then proceed southeast along Lafayette Street to the intersection with Murfreesboro Pike, then proceed southeast along Murfreesboro Pike to the intersection with Interstate 24, then proceed south along Interstate 24 to the intersection with Interstate 440, then proceed west along Interstate 440 to the intersection with the Louisville and Nashville Railroad, then proceed south along the Louisville and Nashville Railroad to the intersection with Thompson Lane, then proceed west along Thompson Lane to the intersection with Interstate 65, then proceed north along Interstate 65 to the intersection with the corporate boundary of the City of Berry Hill, then proceed west along the corporate boundary of the City of Berry Hill to the intersection with Franklin Pike, then proceed north along Franklin Pike to the intersection with Interstate 440, then proceed west along Interstate 440 to the intersection with Granny White Pike, then proceed north along Granny White Pike to the intersection with 12th Avenue South, then proceed north along 12th Avenue South to the intersection with Wedgewood Avenue, then proceed west along Wedgewood Avenue to the intersection with 21st Avenue South, then proceed north along 21st Avenue South to the beginning point, the intersection with Edgehill Avenue.

Council District 18

Beginning at the intersection of West End Avenue and Elmington Avenue, proceed northeast along West End Avenue to the intersection with 31st Avenue South, then proceed southeast along 31st Avenue South to the intersection with #912 Alley, then proceed northeast along #912 Alley to the intersection with 30th Avenue South, then proceed southeast along 30th Avenue South to the intersection with Vanderbilt Place, then proceed northeast along Vanderbilt Place to the intersection with 29th Avenue South, then proceed northwest along 29th Avenue South to the intersection with West End Avenue, then proceed northeast along West End Avenue to the intersection with 21st Avenue South, then proceed southeast along 21st Avenue South to the intersection with Wedgewood Avenue, then proceed east along Wedgewood Avenue to the intersection with 12th Avenue South, then proceed south along 12th Avenue South to the intersection with Granny White Pike, then proceed south along Granny White Pike to the intersection with Interstate 440, then proceed west along Interstate 440 to the intersection with Richardson Avenue, then proceed southwest along Richardson Avenue to the intersection with Elmington Avenue, then proceed north along Elmington Avenue to the beginning point, the intersection with West End Avenue.

Council District 19

Beginning at the intersection of Dr. D.B. Todd Jr. Boulevard and Interstate 40, proceed northeast along Interstate 40 to the intersection with Interstate 65, then proceed northeast along Interstate 65 to the intersection with the Cumberland River, then proceed south along the Cumberland River to the intersection with the Louisville and Nashville Railroad, then proceed south along the Louisville and Nashville Railroad to the intersection with Lebanon Pike, then proceed east along Lebanon Pike to the intersection with Spence Lane, then proceed south along Spence Lane to the intersection with Murfreesboro Pike, then proceed northwest along Murfreesboro Pike to the intersection with Lafayette Street, then proceed northwest along Lafayette Street to the intersection with Interstate 40, then proceed west along Interstate 40 to the intersection with 8th Avenue South, then proceed south along 8th Avenue South to the intersection with South Street, then proceed west along South Street to the intersection with 13th Avenue South, then proceed south along 13th Avenue South to the intersection with Edgehill Avenue, then proceed west along Edgehill Avenue to the intersection with 21st Avenue South, then proceed north along 21st Avenue South to the intersection with West End Avenue, then proceed northeast along West End Avenue to the intersection with 16th Avenue North, then proceed northwest along 16th Avenue North to the intersection with Church Street, then proceed northeast along Church Street to the intersection with McMillin Street, then proceed northwest along McMillin Street to the intersection with Charlotte Avenue, then proceed southwest along Charlotte Avenue to the intersection with Dr. D.B. Todd Jr. Boulevard, then proceed northwest along Dr. D.B. Todd Jr. Boulevard to the beginning point, the intersection with Interstate 40.

Council District 20

Beginning at the intersection of Davidson Branch and the Cumberland River, proceed north along the Cumberland River to the intersection with 54th Avenue North, then proceed south along 54th Avenue North to the intersection with the CSX Railroad, then proceed southeast along the CSX Railroad to the intersection with Interstate 40, then proceed west along Interstate 40 to the intersection with White Bridge Road, then proceed south along White Bridge Road to the intersection with Kendall Drive, then proceed west along Kendall Drive to the intersection with Knob Road, then proceed west along Knob Road to the intersection with Fleetwood Drive, then proceed southwest along Fleetwood Drive to the intersection with Hillwood Boulevard, then proceed northwest along Hillwood Boulevard to the intersection with Charlotte Pike, then proceed southwest along Charlotte Pike to the intersection with Davidson Branch, then proceed northwest along Davidson Branch to the beginning point, the intersection with the Cumberland River.

Council District 21

Beginning at the intersection of Clarksville Pike and the Cumberland River, proceed southeast along Clarksville Pike to the intersection with 18th Avenue North, then proceed southeast along 18th Avenue North to the intersection with Clay Street, then proceed northeast along Clay Street to the intersection with Delta Avenue, then proceed north along Delta Avenue to the intersection with Dominican Drive, then proceed northeast along Dominican Drive to the intersection with Interstate 65, then proceed southwest along Interstate 65 to the intersection with Interstate 40, then proceed southwest along Interstate 40 to the intersection with Dr. D.B. Todd Jr. Boulevard, then proceed southeast along Dr. D.B. Todd Jr. Boulevard to the intersection with Charlotte Avenue, then proceed northeast along Charlotte Avenue to the intersection with McMillin Street, then proceed southeast along McMillin Street to the intersection with Church Street, then proceed southwest along Church Street to the intersection with 16th Avenue North, then proceed southeast along 16th Avenue North to the intersection with West End Avenue, then proceed southwest along West End Avenue to the intersection with 29th Avenue South, then proceed southeast along 29th Avenue South to the intersection with Vanderbilt Place, then proceed southwest along Vanderbilt Place to the intersection with 30th Avenue South, then proceed northwest along 30th Avenue South to the intersection with #912 Alley, then proceed southwest along #912 Alley to the intersection with #893 Alley, then proceed southeast along #893 Alley to the intersection with #912 Alley, then proceed southwest along #912 Alley to the intersection with 31st Avenue South, then proceed northwest along 31st Avenue South to the intersection with West End Avenue, then proceed southwest along West End Avenue to the intersection with Interstate 440, then proceed north along Interstate 440 to the intersection with Charlotte Avenue, then proceed west along Charlotte Avenue to the intersection with 33rd Avenue North, then proceed north along 33rd Avenue North to the intersection with #934 Alley, then proceed west along #934 Alley to the intersection with 36th Avenue North, then proceed north along 36th Avenue North to the intersection with Interstate 40, then proceed southwest along Interstate 40 to the intersection with the Louisville and Nashville Railroad, then proceed northwest along the Louisville and Nashville Railroad to the intersection with 54th Avenue North, then proceed north along 54th Avenue North to the

intersection with the Cumberland River, then proceed southeast along the Cumberland River to the beginning point, the intersection with Clarksville Pike.

Council District 22

Beginning at the intersection of Old Charlotte Pike and Charlotte Pike, proceed northeast on Charlotte Pike to the intersection with Interstate 40, then proceed southwest along Interstate 40 to the intersection with Old Hickory Boulevard, then proceed south along Old Hickory Boulevard to the intersection with Sonya Drive, then proceed northeast along Sonya Drive to the intersection with the southern boundary of Stoneridge Townhomes, then proceed southeast along the boundary of Stoneridge Townhomes approximately 1,700 feet to a point, then proceed south approximately 4,300 feet to a point, then proceed southwest approximately 2,800 feet to the intersection with Old Hickory Boulevard, then proceed southeast along Old Hickory Boulevard to the intersection with Memphis-Bristol Highway (Hwy 70 S), then proceed southwest along Memphis-Bristol Highway (Hwy 70 S) to the intersection with Old Harding Pike, then proceed southwest along Old Harding Pike to the intersection with Hicks Road, then proceed south along Hicks Road to the intersection with Patton Lane, then proceed southwest along Patton Lane to the intersection with Colice Jeanne Road, then proceed northwest along Colice Jeanne Road to the intersection with Willow Creek Drive, then proceed south along Willow Creek Drive to the intersection with Bellevue Road, then proceed northwest along Bellevue Road to the intersection with Old Harding Pike, then proceed southwest along Old Harding Pike to the intersection with the Harpeth River, then proceed northwest along the Harpeth River to the intersection with the Louisville and Nashville Railroad, then proceed northwest along the Louisville and Nashville Railroad to a point approximately 330 feet northwest of the intersection with Newsom Station Road, then proceed northeast to the intersection of Newsom Station Road and the Harpeth River, then proceed northwest along the Harpeth River to the intersection with Buffalo Creek, then proceed east along Buffalo Creek to the intersection with Charlotte Pike, then proceed east along Charlotte Pike to the intersection with Overall Creek, then proceed north along Overall Creek to the intersection with Old Charlotte Pike, then proceed east along Old Charlotte Pike to the intersection with Sawyer Brown Road, then proceed north along Sawyer Brown Road to the intersection with Old Charlotte Pike, then proceed east along Old Charlotte Pike to the beginning point, the intersection with Charlotte Pike.

Council District 23

Beginning at the intersection of Charlotte Pike and Hillwood Boulevard, proceed southeast along Hillwood Boulevard to the intersection with the Louisville and Nashville Railroad, then proceed northeast along the Louisville and Nashville Railroad to the intersection with Sugartree Creek, then proceed southeast along Sugartree Creek to the intersection with the corporate boundary of the City of Belle Meade, then proceed south along the corporate boundary of the City of Belle Meade to the intersection with Harding Place, then proceed west along Harding Place to the intersection with Lynnwood Boulevard, then proceed south along Lynnwood Boulevard to the intersection with Richland Creek, then proceed northwest along Richland Creek to the intersection with the corporate boundary of the City of Belle Meade, then proceed south along the corporate boundary of the City of Belle Meade to the intersection with Chickering Lane, then proceed northwest along Chickering Lane to the intersection with Chickering Road, then proceed north along Chickering Road to the intersection with the corporate boundary of the City of Belle Meade, then proceed west along the corporate boundary of the City of Belle Meade to the intersection with Page Road, then proceed north along Page Road to the intersection with Nichol Lane, then proceed north along Nichol Lane to the intersection with West Tyne Drive, then proceed west along West Tyne Drive to the intersection with Page Road, then proceed northwest along Page Road to the intersection with Harding Pike, then proceed southwest along Harding Pike to the intersection with Highway 100, then proceed southwest along Highway 100 to the intersection with Harpeth Trace Drive, then proceed northwest along Harpeth Trace Drive to the intersection with the western boundary of the Harpeth Trace Estates subdivision, then proceed north along the boundary of the Harpeth Trace Estates subdivision to the intersection with Harding Pike (Hwy 70 S), then proceed southwest along Harding Pike (Hwy 70 S) to the intersection with Old Hickory Boulevard, then proceed north along Old Hickory Boulevard to a point approximately 1,700 feet north of the intersection with Woodbury Falls Drive, then proceed approximately 2,800 feet northeast to a point, then proceed approximately 4,300 feet north to a point being the intersection with the southern boundary of Stoneridge Townhomes, then proceed northwest along the boundary to the intersection with Sonya Drive, then proceed southwest along Sonya Drive to the intersection with Old Hickory Boulevard, then proceed north along Old Hickory Boulevard to the intersection with Interstate 40, then proceed northeast along Interstate 40, to the

intersection with Charlotte Pike, then proceed northeast along Charlotte Pike to the beginning point, the intersection with Hillwood Boulevard.

Council District 24

Beginning at the intersection of Delaware Avenue and 36th Avenue North, proceed south along 36th Avenue North to the intersection with #934 Alley, then proceed east along #934 Alley to the intersection with 33rd Avenue North, then proceed south along 33rd Avenue North to the intersection with Charlotte Avenue, then proceed east along Charlotte Avenue to the intersection with Interstate 440, then proceed south along Interstate 440 to the intersection with West End Avenue, then proceed southwest along West End Avenue to the intersection with Elmington Avenue, then proceed south along Elmington Avenue to the intersection with Richardson Avenue, then proceed east along Richardson Avenue to the intersection with Interstate 440, then proceed southeast along Interstate 440 to the intersection with Woodlawn Drive, then proceed southwest along Woodlawn Drive to the intersection with New Natchez Trace, then proceed southwest along New Natchez Trace to the intersection with Golf Club Lane, then proceed west along Golf Club Lane to the intersection with Bowling Avenue, then proceed south along Bowling Avenue to the intersection with Woodmont Boulevard, then proceed west along Woodmont Boulevard to the intersection with Woodmont Lane, then proceed south along Woodmont Lane to the intersection with Sugartree Creek, then proceed northwest along Sugartree Creek to the intersection with the Louisville and Nashville Railroad, then proceed southwest along the Louisville and Nashville Railroad to the intersection with Hillwood Boulevard, then proceed northwest along Hillwood Boulevard to the intersection with Fleetwood Drive, then proceed northeast along Fleetwood Drive to the intersection with Russleo Drive, then proceed southeast along Russleo Drive to the intersection with Knob Road, then proceed northeast along Knob Road to the intersection with Kendall Drive, then proceed north along Kendall Drive to the intersection with White Bridge Pike, then proceed north along White Bridge Pike to the intersection with Interstate 40, then proceed east along Interstate 40 to the intersection with 36th Avenue North, then proceed southeast to the beginning point, the intersection with Delaware Avenue.

Council District 25

Beginning at the intersection of Interstate 440 and 8th Avenue South, proceed south along 8th Avenue South to the intersection with an Interstate 65 ramp, then proceed south along the ramp to the intersection with the corporate boundary of the City of Berry Hill, then proceed south along the corporate boundary of the City of Berry Hill to the intersection with Interstate 65, then proceed south along Interstate 65 to the intersection with Harding Place, then proceed west along Harding Place to the intersection with Hillsboro Pike, then proceed northeast along Hillsboro Pike to the intersection with Sugartree Creek, then proceed north along Sugartree Creek to the intersection with Abbott Martin Road, then proceed west along Abbott Martin Road to the intersection with the corporate boundary of the City of Belle Meade, then proceed north along the corporate boundary of the City of Belle Meade to the intersection with Sugartree Creek, then proceed southeast along Sugartree Creek to the intersection with Woodmont Lane, then proceed north along Woodmont Lane to the intersection with Woodmont Boulevard, then proceed east along Woodmont Boulevard to the intersection with Bowling Avenue, then proceed north along Bowling Avenue to the intersection with Golf Club Lane, then proceed east along Golf Club Lane to the intersection with New Natchez Trace, then proceed north along New Natchez Trace to the intersection with Woodlawn Drive, then proceed northeast along Woodlawn Drive to the intersection with Interstate 440, then proceed southeast along Interstate 440 to the beginning point, the intersection with Interstate 65.

Council District 26

Beginning at the intersection of Hill Road and Franklin Pike Circle, proceed north along Franklin Pike Circle to the intersection with an unnamed stream, then proceed west along the unnamed stream to the intersection with Interstate 65, then proceed north along Interstate 65 to the intersection with Harding Place, then proceed east along Harding Place to the intersection with the Louisville and Nashville Railroad, then proceed northeast along the Louisville and Nashville Railroad to the intersection with Trousdale Drive, then proceed north along Trousdale Drive to the intersection with Veritas Street, then proceed east along Veritas Street to the intersection with Keystone Avenue, then proceed south along Keystone Avenue to the intersection with Allied Drive, then proceed east along Allied Drive to the intersection with Nolensville Pike, then proceed southeast along Nolensville Pike to the intersection with the Louisville and Nashville Railroad, then proceed east along the Louisville and Nashville Railroad to the intersection with Interstate 24, then proceed southeast along Interstate 24 to the intersection with Harding Place, then proceed southwest along Harding Place to the intersection with Seven Mile Creek, then proceed southwest along Seven Mile Creek to the intersection with Nolensville Pike, then proceed south along Nolensville Pike to the intersection with Edmondson Pike, then proceed southwest along Edmondson Pike to the intersection with Briarwood Drive, then proceed northwest

along Briarwood Drive to the intersection with Seven Mile Creek, then proceed south along Seven Mile Creek to the intersection with an unnamed stream, then proceed west along the unnamed stream to the intersection with Hill Road, then proceed west along Hill Road to the beginning point, the intersection with Franklin Pike Circle.

Council District 27

Beginning at the intersection of Old Hickory Boulevard and Edmondson Pike, proceed north along Edmondson Pike to an unnamed stream, then proceed west along the unnamed stream to the intersection with Seven Mile Creek, then proceed north along Seven Mile Creek to the intersection with Briarwood Drive, then proceed southeast along Briarwood Drive to the intersection with Edmondson Pike, then proceed northeast along Edmondson Pike to the intersection with Nolensville Pike, then proceed southeast along Nolensville Pike to the intersection with Sorghum Branch, then proceed east along Sorghum Branch to the intersection with Tusculum Road, then proceed east along Tusculum Road to the intersection with Tusculum Court, then proceed south along Tusculum Court to the intersection with Ocala Drive, then proceed northwest along Ocala Drive to the intersection with Eulala Drive, then proceed south along Eulala Drive to the intersection with Whittemore Branch, then proceed west along Whittemore Branch to the intersection with Nolensville Pike, then proceed north along Nolensville Pike to the intersection with Old Hickory Boulevard, then proceed west to the beginning point, the intersection with Edmondson Pike.

Council District 28

Beginning at the intersection of Interstate 24 and Harding Place, proceed northeast along Harding Place to the intersection with Ezell Pike, then proceed southeast along Ezell Pike to the intersection with the Louisville and Nashville Railroad, then proceed southeast along the Louisville and Nashville Railroad to the intersection with a spur of the Louisville and Nashville Railroad, then proceed northeast along the spur of the Louisville and Nashville Railroad to the intersection with Mill Creek, then proceed northeast along Mill Creek to the intersection with Franklin Branch, then proceed south along Franklin Branch to the intersection with the Louisville and Nashville Railroad, then proceed east along the Louisville and Nashville Railroad to the intersection with Mullins Drive, then proceed northeast along Mullins Drive to the intersection with Bush Road, then proceed northeast along Bush Road to the intersection with Harding Place, then proceed southwest along Harding Place to the intersection with Donelson Pike, then proceed north along Donelson Pike to the intersection with Murfreesboro Pike, then proceed southeast along Murfreesboro Pike to the intersection with Rural Hill Road, then proceed south along Rural Hill Road to the intersection with Rice Road, then proceed northwest along Rice Road to the intersection with Edge O Lake Drive, then proceed southeast along Edge O Lake Drive to the intersection with Pebble Creek Drive, then proceed west along Pebble Creek Drive to the intersection with Rader Ridge Road, then proceed south along Rader Ridge Road to the intersection with Franklin Branch, then proceed southeast along Franklin Branch for approximately 2,500 feet, then proceed northeast approximately 620 feet to the intersection with Bridgecrest Drive, then proceed southeast along Bridgecrest Drive to the intersection with Rural Hill Road, then proceed south along Rural Hill Road to the intersection with Mount View Road, then proceed northwest along Mount View Road to the intersection with Hickory Hollow Parkway, then proceed northwest along Hickory Hollow Parkway to the intersection with Antioch Pike, then proceed west along Antioch Pike to the intersection with Blue Hole Road, then proceed south along Blue Hole Road to the intersection with Interstate 24, then proceed northwest along Interstate 24 to the beginning point, the intersection with Harding Place.

Council District 29

Beginning at the intersection of Murfreesboro Pike and Town Park Drive, proceed northeast along Town Park Drive to the intersection with Old Murfreesboro Pike, then proceed northwest along Old Murfreesboro Pike to the intersection with McCrory Creek Road, then proceed north along McCrory Creek Road to the intersection with Pulley Road, then proceed east along Pulley Road to the intersection with Pleasant Hill Road, then proceed south along Pleasant Hill Road to the intersection with Couchville Pike, then proceed east along Couchville Pike to the intersection with Bell Road, then proceed east approximately 450 feet to the intersection with the eastern shoreline of the J Percy Priest Reservoir, then proceed east along the shoreline of the J Percy Priest Reservoir to the intersection with an unnamed road within the Smith Springs Public Use Area, then proceed southeast along the unnamed road to the intersection with Smith Springs Road, then proceed southeast along Smith Springs Road to the intersection with a private drive for Smith Springs Townhomes, then proceed west along the private drive to the intersection with Anderson Road, then proceed south along Anderson Road to the intersection with Fieldstone Drive, then proceed south along Fieldstone Drive to the intersection with Lu Ann Drive, then proceed southeast along Lu Ann Drive to the intersection with Roundwood Forest Drive, then proceed southwest along Roundwood Forest Drive to the intersection with Owendale Drive, then proceed south along

Owendale Drive to the intersection with Hamilton Church Road, then proceed west along Hamilton Church Road to the intersection with Murfreesboro Pike, then proceed northwest along Murfreesboro Pike to the beginning point, the intersection with Town Park Drive.

Council District 30

Beginning at the intersection of Nolensville Pike and Seven Mile Creek, proceed northeast along Seven Mile Creek to the intersection with Harding Place, then proceed east along Harding Place to the intersection with Interstate 24, then proceed southeast along Interstate 24 to the intersection with Blue Hole Road, then proceed south along Blue Hole Road to the intersection with Tusculum Road, then proceed west along Tusculum Road to the intersection with Ocala Drive, then proceed southwest along Ocala Drive to the intersection with Tusculum Court, then proceed northeast along Tusculum Court to the intersection with Tusculum Road, then proceed northwest along Tusculum Road to the intersection with Nolensville Pike, then proceed north along Nolensville Pike to the beginning point, the intersection with Seven Mile Creek.

Council District 31

Beginning at the intersection of Ocala Drive and Eulala Drive, proceed east along Ocala Drive to the intersection with Tusculum Road, then proceed east along Tusculum Road to the intersection with Blue Hole Road, then proceed north along Blue Hole Road to the intersection with Interstate 24, then proceed southeast along Interstate 24 to the intersection with Mill Creek, then proceed south along Mill Creek to the intersection with Collins Creek, then proceed southeast along Collins Creek to the intersection with Cedar Pointe Parkway, then proceed southwest along Cedar Pointe Parkway to the intersection with Bell Road, then proceed west along Bell Road to the intersection with Blue Hole Road, then proceed southwest along Blue Hole Road to the intersection with Pettus Road, then proceed east along Pettus Road to the intersection with Blairfield Drive, then proceed southeast along Blairfield Drive to the intersection with Cane Ridge Road, then proceed south along Cane Ridge Road to the intersection with Old Hickory Boulevard, then proceed west along Old Hickory Boulevard to the intersection with Whittemore Lane, then proceed south along Whittemore Lane to the intersection with Burkitt Road, then proceed east along Burkitt Road to the intersection with Battle Road, then proceed south along Battle Road to the intersection with the Davidson-Williamson County Line, then proceed west along the Davidson-Williamson County Line to the intersection with Nolensville Pike, then proceed northwest along Nolensville Pike to the intersection with Whittemore Branch, then proceed northeast along Whittemore Branch to the intersection with Cedarmont Drive, then proceed north along Cedarmont Drive to the intersection with Eulala Drive, then proceed north along Eulala Drive to the beginning point, the intersection with Ocala Drive.

Council District 32

Beginning at the intersection of Rader Ridge Road and Pebble Creek Drive, proceed southeast along Pebble Creek Drive to the intersection with Edge O Lake Drive, then proceed northwest along Edge O Lake Drive to the intersection with Rice Road, then proceed northeast along Rice Road to the intersection with Rural Hill Road, then proceed north along Rural Hill Road to the intersection with Murfreesboro Pike, then proceed southeast along Murfreesboro Pike to the intersection with Old Hickory Boulevard, then proceed southwest along Old Hickory Boulevard to the intersection with the Louisville and Nashville Railroad, then proceed northwest along the Louisville and Nashville Railroad to the intersection with Old Franklin Road, then proceed southwest along Old Franklin Road to the intersection with Cane Ridge Road, then proceed south along Cane Ridge Road to the intersection with Blairfield Drive, then proceed southwest along Blairfield Drive to the intersection with Pettus Road, then proceed north along Pettus Road to the intersection with Blue Hole Road, then proceed northwest along Blue Hole Road to the intersection with Bell Road, then proceed east along Bell Road to the intersection with Cedar Point Parkway, then proceed north along Cedar Point Parkway to the intersection with Collins Creek, then proceed northwest along Collins Creek to the intersection with Mill Creek, then proceed north along Mill Creek to the intersection with Interstate 24, then proceed northwest along Interstate 24 to the intersection with Blue Hole Road, then proceed north along Blue Hole Road to the intersection with Antioch Pike, then proceed east along Antioch Pike to the intersection with Hickory Hollow Parkway, then proceed south along Hickory Hollow Parkway to the intersection with Mount View Road, then proceed southeast along Mount View Road to the intersection with Rural Hill Road, then proceed north along Rural Hill Road to the intersection with Bridgecrest Drive, then proceed west along Bridgecrest Drive to a point approximately 120 feet southeast of the intersection with Bridge Crest Lane, then proceed southwest approximately 620 feet to the intersection with Franklin Branch, then proceed northwest along Franklin Branch to the intersection with Rader Ridge Road, then proceed north along Rader Ridge Road to the beginning point, the intersection with Pebble Creek Drive.

Council District 33

Beginning at the intersection of Stewarts Ferry Pike and the Davidson-Wilson County Line, proceed south along the Davidson-Wilson County Line to the intersec-

tion with the Davidson-Rutherford County Line, then proceed south along the Davidson-Rutherford County Line to the intersection with the Davidson-Williamson County Line, then proceed north along the Davidson-Williamson County Line to the intersection with Battle Road, then proceed north along Battle Road to the intersection with Burkitt Road, then proceed west along Burkitt Road to the intersection with Whittemore Lane, then proceed north along Whittemore Lane to the intersection with Old Hickory Boulevard, then proceed east along Old Hickory Boulevard to the intersection with Cane Ridge Road, then proceed northwest along Cane Ridge Road to the intersection with Old Franklin Road, then proceed east along Old Franklin Road to the intersection with the Louisville and Nashville Railroad, then proceed southeast along the Louisville and Nashville Railroad to the intersection with Old Hickory Boulevard, then proceed north along Old Hickory Boulevard to the intersection with Hobson Pike, then proceed northeast along Hobson Pike to the intersection with Murfreesboro Pike, then proceed northwest along Murfreesboro Pike to the intersection with Hamilton Church Road, then proceed east along Hamilton Church Road to the intersection with Owendale Drive, then proceed north along Owendale Drive to the intersection with Roundwood Forest Drive, then proceed east along Roundwood Forest Drive to the intersection with Lu Ann Drive, then proceed northwest along Lu Ann Drive to the intersection with Fieldstone Drive, then proceed north along Fieldstone Drive to the intersection with Anderson Road, then proceed east along Anderson Road to the intersection with a private drive for Smith Springs Townhomes, then proceed east along the private drive to the intersection with Smith Springs Road, then proceed northwest along Smith Springs Road to the intersection with an unnamed road within the Smith Springs Public Use Area, then proceed northeast along the unnamed road to the intersection with the shoreline of the J Percy Priest Reservoir, then proceed north along the shoreline of the J Percy Priest Reservoir to the Davidson-Wilson County Line, then proceed east along the Davidson-Wilson County Line (including the non-contiguous portion of Davidson County) to the beginning point, the intersection with Stewarts Ferry Pike.

Council District 34

Beginning at the intersection of Abbott Martin Road and the corporate boundary of the City of Belle Meade, proceed east along Abbott Martin Road to the intersection with Sugartree Creek, then proceed southeast along Sugartree Creek to the intersection with Hillsboro Pike, then proceed southwest along Hillsboro Pike to the intersection with Harding Place, then proceed east along Harding Place to the intersection with Battery Lane, then proceed east to the intersection with Harding Place, then proceed southeast to the intersection with Interstate 65, then proceed south along Interstate 65 to the intersection with an unnamed stream (approximately 250 feet west of Baxter Lane), then proceed east along the unnamed stream to the intersection with Franklin Pike Circle, then proceed south along Franklin Pike Circle to the intersection with the Davidson-Williamson County Line, then proceed west along the Davidson-Williamson County Line to the intersection with the Harpeth River, then proceed north along the Harpeth River to the intersection with Highway 100, then proceed northeast along Highway 100 to the intersection with Old Hickory Boulevard, then proceed north along Old Hickory Boulevard to the intersection with Bellevue Road, then proceed southwest along Bellevue Road to the intersection with Hicks Road, then proceed west along Hicks Road to the intersection with Old Harding Pike, then proceed northeast along Old Harding Pike to the intersection with Highway 70 South, then proceed northeast along Highway 70 South to the intersection with the western boundary of the Harpeth Trace Estates Subdivision, then proceed south along the boundary of the Harpeth Trace Estates Subdivision to the intersection with Harpeth Trace Drive, then proceed West along Harpeth Trace Drive to the intersection with Highway 100, then proceed northeast along Highway 100 to the intersection with Page Road, then proceed southeast along Page Road to the intersection with West Tyne Drive, then proceed east along West Tyne Drive to the intersection with Nichol Lane, then proceed south along Nichol Lane to the intersection with Page Road, then proceed southeast along Page Road to the intersection with the corporate boundary of the City of Forest Hills, then proceed east along the corporate boundary of the City of Forest Hills to the intersection with Chickering Road, then proceed south along Chickering Road to the intersection with Chickering Lane, then proceed southeast along Chickering Lane to the intersection with the corporate boundary of the City of Forest Hills, then proceed east along the corporate boundary of the City of Forest Hills to the intersection with Richland Creek, then proceed southeast along Richland Creek to the intersection with Lynnwood Boulevard, then proceed north along Lynnwood Boulevard to the intersection with Harding Place, then proceed east along Harding Place to the intersection with the corporate boundary of the City of Belle Meade, then proceed north along the corporate boundary of the City of Belle Meade to the beginning point, the intersection with Abbott Martin Road.

Council District 35

Beginning at the intersection of the Davidson-Cheatham County Line and the Cumberland River, proceed east along the Cumberland River to the intersection

with Davidson Branch, then proceed southeast along Davidson Branch to the intersection with Charlotte Pike, then proceed southwest along Charlotte Pike to the intersection with Old Charlotte Pike, then proceed west along Old Charlotte Pike to the intersection with Overall Creek, then proceed south along Overall Creek to the intersection with Charlotte Pike, then proceed southwest along Charlotte Pike to the intersection with Buffalo Creek, then proceed southwest along Buffalo Creek to the intersection with the Harpeth River, then proceed south along the Harpeth River to the intersection with Newsom Station Road, then proceed southwest along Newsom Station Road to the intersection with the Louisville and Nashville Railroad, then proceed southeast along the Louisville and Nashville Railroad to the intersection with the Harpeth River, then proceed south along the Harpeth River to the intersection with Harding Pike, then proceed northeast along Harding Pike to the intersection with Bellevue Road, then proceed east along Bellevue Road to the intersection with Willow Creek Drive, then proceed north along Willow Creek Drive to the intersection with Colice Jeanne Road, then proceed southeast along Colice Jeanne Road to the intersection with Patten Lane, then proceed northeast along Patten Lane to the intersection with Hicks Road, then proceed southeast along Hicks Road to the intersection with Bellevue Road, then proceed east along Bellevue Road to the intersection with Old Hickory Boulevard, then proceed southwest along Old Hickory Boulevard to the intersection with Highway 100, then proceed southwest along Highway 100 to the intersection with the Harpeth River, then proceed south along the Harpeth River to the intersection with the Davidson-Williamson County Line, then proceed southwest along the Davidson-Williamson County Line to the intersection with the Davidson-Cheatham County Line, then proceed north along the Davidson-Cheatham County Line to the beginning point, the intersection with the Cumberland River.

School Board District 1

Beginning at the intersection of the Davidson-Robertson County Line and Highland Avenue, proceed southeast along the corporate boundary of the City of Ridgetop to the intersection with Baker Road, then proceed south along Baker Road to the intersection with Freeman Hollow Road, then proceed southwest along Freeman Hollow Road to the intersection with Lickton Pike, then proceed west along Lickton Pike to the intersection with Union Hill Road, then proceed east along Union Hill Road to the intersection with Brick Church Pike, then proceed southwest along Brick Church Pike to the intersection with Shaw Branch, then proceed southwest along Shaw Branch to the intersection with Shaw Road, then proceed southeast along Shaw Road to the intersection with Brick Church Pike, then proceed south along Brick Church Pike to the intersection with Old Hickory Boulevard, then proceed east along Old Hickory Boulevard to the intersection with Dickerson Pike, then proceed south along Dickerson Pike to the intersection with West Trinity Lane, then proceed west along West Trinity Lane to the intersection with Interstate 24, then proceed south along Interstate 24 to the intersection with Interstate 65, then proceed west along Interstate 65 to the intersection with the Cumberland River, then proceed south along the Cumberland River to the intersection with Jefferson Street, then proceed southwest along Jefferson Street to the intersection with Interstate 40, then proceed west along Interstate 40 to the intersection with Briley Parkway, then proceed north along Briley Parkway to the intersection with the Cumberland River, then proceed northwest along the Cumberland River to the intersection with the Davidson-Cheatham County Line, then proceed north along the Davidson-Cheatham County Line to the intersection with the Davidson-Robertson County Line, then proceed east along the Davidson-Robertson County Line to the beginning point, the intersection with Highland Avenue.

School Board District 2

Beginning at the intersection of Franklin Pike and Harding Place, proceed east along Harding Place to Trousdale Drive, then proceed south along Trousdale to the intersection with Blackman Road, then proceed east along Blackman Road to the intersection with Edmondson Pike, then proceed northeast along Edmonson Pike to the intersection with Wallace Road, then proceed northeast along Wallace Road to the intersection with Recovery Road, then proceed north along Recovery Road to the intersection with Harding Place, then proceed northeast along Harding Place to the intersection with Linbar Drive, then proceed southeast along Linbar Drive to the intersection with Ezell Road, then proceed south along Ezell Road to the intersection with Apache Trail, then proceed south on Apache Trail to a point approximately 200 feet northeast of the western boundary of the Hickory Lake Apartments, then proceed southwest 200 feet to the western boundary of the Hickory Lake Apartments, then proceed south approximately 330 feet along the western boundary of the Hickory Lake Apartments, then proceed west approximately 750 feet along the southern boundary of the Hickory Lake Apartments, then proceed south approximately 380 feet along the western boundary of the Hickory Lake Apartments, then proceed west approximately 360 feet along the northern boundary of the Cedar Hill Apartments, then proceed south approximately 415 feet along the western boundary of the Cedar Hill Apartments to the intersection with Packard Drive, then proceed southeast along Packard

Drive to an intersection with Interstate 24, then proceed southeast along Interstate 24 to the intersection with Blue Hole Road, then proceed south along Blue Hole Road to the intersection with Tusculum Road, then proceed west along Tusculum Road to the intersection with Blue Lake Circle, then proceed south on Blue Lake Circle to the intersection with Saxony Lake Drive, then proceed west on Saxony Lake to the intersection with Blue Lake Trail, then proceed northeast along Blue Lake Trail to the intersection with Blue Lake Circle, then proceed southeast along Blue Lake Circle to the intersection with Timberlake Way, then proceed west along Timberlake Way to the intersection with Blue Hole Road, then proceed south along Blue Hole Road to the intersection with Oak Chase Drive, then proceed west along Oak Chase Drive to the intersection with Deer Valley Trail, then proceed south along Deer Valley Trail to the intersection with Pettus Road, then proceed east along Pettus Road to the intersection with Old Hickory Boulevard, then proceed south along Old Hickory Boulevard to the intersection with Interstate 24, then proceed southeast along Interstate 24 to the intersection with the Rutherford-Davidson County Line, then proceed south along the Rutherford-Davidson County Line to the intersection with the Williamson-Davidson County Line, then proceed northwest along the Williamson-Davidson County Line to the intersection with Jones Parkway, then proceed north along Jones Parkway to the intersection with Cloverland Drive, then proceed north along Cloverland Drive to the intersection with Old Hickory Boulevard, then proceed east along Old Hickory Boulevard to the intersection with Hearthstone Lane, then proceed north along Hearthstone Lane to the intersection with Lymington Court, then proceed north along Lymington Court to its terminus, then proceed northwest approximately 460 feet to the intersection with Hill Road, then proceed east along Hill Road to the intersection with Overton Road, then proceed north along Overton Road to the intersection with Baxter Lane, then proceed west along Baxter Lane to the intersection with Franklin Pike Circle, then proceed south along Franklin Pike Circle to the intersection with an unnamed stream, then proceed west along the unnamed stream to the intersection with Franklin Pike, then proceed north along Franklin Pike to the beginning, the intersection with Harding Place.

School Board District 3

Beginning at the intersection of the Davidson-Robertson County Line and Highland Avenue, proceed northeast along the Davidson-Robertson County Line to the intersection with the Davidson-Sumner County Line, then proceed southeast along the Davidson-Sumner County Line to the intersection with the Cumberland River, then proceed southwest along the Cumberland River to the intersection with McGavock Pike, then proceed west along McGavock Pike to the intersection with Gallatin Pike, then proceed south along Gallatin Pike to the intersection with East Trinity Lane, then proceed west along East Trinity Lane to the intersection with Dickerson Pike, then proceed north along Dickerson Pike to the intersection with Old Hickory Boulevard, then proceed west along Old Hickory Boulevard to the intersection with Brick Church Pike, then proceed north along Brick Church Pike to the intersection with Shaw Road, then proceed northwest along Shaw Road to the intersection with Shaw Branch, then proceed northeast along Shaw Branch to the intersection with Brick Church Pike, then proceed northeast along Brick Church Pike to the intersection with Union Hill Road, then proceed northwest along Union Hill Road to the intersection with Lickton Pike, then proceed northeast along Lickton Pike to the intersection with Freeman Hollow Road, then proceed north along Freeman Hollow Road to the intersection with Baker Road, then proceed northwest along Baker Road to the intersection with the corporate boundary of the City of Ridgetop, then proceed northwest along the corporate boundary of the City of Ridgetop to the beginning point, the intersection of the Davidson-Robertson County Line and Highland Avenue.

School Board District 4

Beginning at the intersection of the Cumberland River and the Davidson-Wilson County Line, proceed southeast along the Davidson-Wilson County Line to a point approximately 3,050 feet south of Alvin Sperry Road to the intersection with the eastern shoreline of the J Percy Priest Reservoir, then proceed west across the reservoir to the intersection with the western shoreline of the J Percy Priest Reservoir, then proceed north along the shoreline to the intersection with the Stones River, then proceed north along the Stones River to the intersection with Interstate 40, then proceed southwest along Interstate 40 to the intersection with Spence Lane, then proceed north along Spence Lane to the intersection with Lebanon Pike, then proceed west along Lebanon Pike to the intersection with the Louisville and Nashville Railroad, then proceed north along the Louisville and Nashville Railroad to the intersection with the Cumberland River, then proceed east along the Cumberland River to the beginning point, the intersection with the Davidson-Wilson County Line.

School Board District 5

Beginning at the intersection with Interstate 65 and West Trinity Lane, proceed east along West Trinity Lane to the intersection with East Trinity Lane, then proceed east along East Trinity Lane to the intersection with Gallatin Pike, then proceed northeast along Gallatin Pike to the intersection with McGavock Pike, then proceed

east along McGavock Pike to the intersection with the Cumberland River, then proceed south along the Cumberland River to the intersection with the Louisville and Nashville Railroad, then proceed south along the Louisville and Nashville Railroad to the intersection with Lebanon Pike, then proceed east along Lebanon Pike to intersection with Spence Lane, then proceed south along Spence Lane to the intersection with Interstate 24, then proceed south along Interstate 24 to the intersection with Interstate 440, then proceed west along Interstate 440 to the intersection with the Louisville and Nashville Railroad, then proceed northwest along the Louisville and Nashville Railroad to the intersection with the Tennessee Central Railroad, then proceed south along the Tennessee Central Railroad to the intersection with Nolensville Pike, then proceed northwest along Nolensville Pike to the intersection with Wedgewood Avenue, then proceed southwest along Wedgewood Avenue to the intersection with Walsh Road, then proceed southwest along Walsh Road to the intersection with Wedgewood Avenue, then proceed west along Wedgewood Avenue to the intersection with 17th Avenue South, then proceed north along 17th Avenue South to the intersection with Music Square West, then proceed north along Music Square West to the intersection with Division Street, then proceed west along Division Street to the intersection with 17th Avenue South, then proceed northwest along 17th Avenue South to the intersection with West End Avenue, then proceed southwest along West End Avenue to the intersection with 25th Avenue North, then proceed north along 25th Avenue North to the intersection with Charlotte Avenue, then proceed west along Charlotte Avenue to the intersection with the Louisville and Nashville Railroad, then proceed southwest along the Louisville and Nashville Railroad to the intersection with Interstate 440, then proceed north along Interstate 440 to the intersection with Elkins Avenue, then proceed west along Elkins Avenue to the intersection with 40th Avenue North, then proceed north along 40th Avenue North to the intersection with #1198 Alley, then proceed west along #1198 Alley to the intersection with the Louisville and Nashville Railroad, then proceed north along the Louisville and Nashville Railroad to the intersection with Interstate 40, then proceed east along Interstate 40 to the intersection with Jefferson Street, then proceed northeast on Jefferson Street to the intersection with the Cumberland River, then proceed north along the Cumberland River to the intersection with Interstate 65, then proceed east along I-65 to the beginning point, the intersection with West Trinity Lane.

School Board District 6

Beginning at the intersection of Interstate 24 and Antioch Pike, proceed southeast along Antioch Pike to the intersection with Franklin Limestone Road, then proceed east along Franklin Limestone Road to the intersection with the Louisville and Nashville Railroad, then proceed northwest along the Louisville and Nashville Railroad to the intersection with a spur of the Louisville and Nashville Railroad, then proceed northeast along the spur of the Louisville and Nashville Railroad to the intersection with Mill Creek, then proceed north approximately 1,975 feet along Mill Creek to a point, then proceed south to the intersection with the Louisville and Nashville Railroad, then proceed east along the Louisville and Nashville Railroad to the intersection with Mullins Drive, then proceed northeast to the intersection with Bush Road, then proceed southeast along Bush Road to the intersection with Mullis Road, then proceed southeast along Mullis Road to the intersection with Franklin Limestone Road, then proceed north along Franklin Limestone Road to the northern boundary of the Ransom Park subdivision, then proceed southeast along the northern boundaries of Ransom Park Subdivision, Ransom Park Villas Subdivision, and Ransom Park Commercial Lot 7 to the intersection with Murfreesboro Pike, then proceed northwest along Murfreesboro Pike to the intersection with Borowood Drive, then proceed east along Borowood Drive to the intersection with Tarrywood Lane, then proceed along Tarrywood Lane to its terminus, then proceed southeast to the intersection with Rambling Wood Court, then proceed southeast along Rambling Wood Court to the intersection with Rambling Road, then proceed southwest to the intersection with a Tennessee Valley Authority power line, then proceed southeast along the Tennessee Valley Authority power line to the intersection with Nashboro Boulevard, then proceed northeast along Nashboro Boulevard to the intersection with Long Hunter Court, then proceed north along Long Hunter Court to the intersection with Nashboro Greens, then proceed northeast along Nashboro Greens to the intersection with Nashboro Boulevard, then proceed east along Nashboro Boulevard to the intersection with Bell Road, then proceed northeast along Bell Road to the intersection with Smith Springs Road, then proceed east on Smith Springs Road to the intersection with Rural Hill Road, then proceed south on Rural Hill Road to the intersection with Mossdale Drive, then proceed southeast along Mossdale Drive to the intersection with Brantley Drive, then proceed northeast along Brantley Drive to the intersection with Lake Terrace Drive, then proceed northeast along Lake Terrace Drive to the intersection with Nautilus Drive, then proceed northeast along Nautilus Drive to the intersection with Anderson Road, then proceed north along Anderson Road to the intersection with a private drive within the Smith Springs Townhomes

complex, then proceed east along the private drive to the intersection with Smith Springs Road, then proceed southeast along Smith Springs Road to the intersection with Hillshire Drive, then proceed southwest along Hillshire Drive to the intersection with Windsor Green Drive, then proceed southeast along Windsor Green Drive to the intersection with Shakertown Road, then proceed south along Shakertown Road to the intersection with Daisy Trail, then proceed west along Daisy Trail to the intersection with Country Way Road, then proceed southeast along Country Way Road to the intersection with Dove Creek Road, then proceed south along Dove Creek Road to the intersection with Seasons Drive, then proceed northeast along Seasons Drive to the intersection with Mount View Road, then proceed northeast along Mount View Road to the intersection with Smith Springs Parkway, then proceed southeast along Smith Springs Parkway to the intersection with Paddington Way, then proceed southwest along Paddington Way to the intersection with Cambridge Drive, then proceed southeast along Cambridge Drive to the intersection with Smith Springs Parkway, then proceed south along Smith Springs Parkway to the intersection with Hobson Pike, then proceed southwest along Hobson Pike to the intersection with Windcrest Trail, then proceed southeast along Windcrest Trail to the intersection with Windsail Trail, then proceed north to the intersection with Savage Branch, then proceed east along Savage Branch to the J Percy Priest Reservoir, then proceed southeast along the J Percy Priest Reservoir shoreline to the Davidson-Rutherford County Line, then proceed south along the Davidson-Rutherford County Line to the intersection with Interstate 24, then proceed northwest along Interstate 24 to the intersection with a ramp of Interstate 24, then proceed northwest along the ramp to the intersection with Old Hickory Boulevard, then proceed south along Old Hickory Boulevard to the intersection with Pettus Road, then proceed north along Pettus Road to the intersection with Deer Valley Trail, then proceed north along Deer Valley Trail to the intersection with Oak Chase Drive, then proceed east along Oak Chase Drive to the intersection with Blue Hole Road, then proceed north along Blue Hole Road to the intersection with Timberlake Way, then proceed west along Timberlake Way to the intersection with Blue Lake Circle, then proceed southwest along Blue Lake Circle to the intersection with Saxony Lake Drive, then proceed north along Saxony Lake Drive to the intersection with Blue Lake Circle, then proceed north along Blue Lake Circle to the intersection with Tusculum Road, then proceed east along Tusculum Road to the intersection with Blue Hole Road, then proceed north along Blue Hole Road to the intersection with Interstate 24, then proceed northwest along Interstate 24 to the intersection with Packard Drive, then proceed southwest along Packard Drive to the west boundary of the Cedar Hill Apartments, then proceed north approximately 415 feet along the western boundary of the Cedar Hill Apartments, then proceed east approximately 360 feet along the northern boundary of the Cedar Hill Apartments, then proceed north approximately 380 feet along the western boundary of Hickory Lake Apartments, then proceed west approximately 750 feet along the southern boundary of Hickory Lake Apartments, then proceed north approximately 330 feet along the western boundary of Hickory Lake Apartments, then proceed northeast approximately 200 feet to the intersection with Apache Trail, then proceed north along Apache Trail to the intersection with Ezell Road, then proceed north along Ezell Road to the intersection with Linbar Drive, then proceed northwest along Linbar Drive to the intersection with Harding Place, then proceed southwest along Harding Place to the intersection with Jonquil Drive, then proceed north along Jonquil Drive to the intersection with Paragon Mills Road, then proceed east along Paragon Mills Road to the intersection with Dawn Drive, then proceed north along Dawn Drive to the intersection with Scotwood Drive, then proceed southeast along Scotwood Drive to the intersection with Jasmine Drive, then proceed north along Jasmine Drive to the intersection with Eckhart Drive, then proceed southeast along Eckhart Drive to the intersection with Donna Kay Drive, then proceed northwest along Donna Kay Drive to the intersection with Providence Park Lane, then proceed east along Providence Park Lane to the intersection with Generosity Way, then proceed north along Generosity Way to the intersection with the Louisville and Nashville Railroad, then proceed southeast along the Louisville and Nashville Railroad to the intersection with Interstate 24, then proceed northwest along Interstate 24 to the beginning point, the intersection with Antioch Pike.

School Board District 7

Beginning at the intersection of 10th Avenue South and Wedgewood Avenue, proceed east along Wedgewood Avenue to the intersection with Nolensville Pike, then proceed southeast along Nolensville Pike to the intersection with the Tennessee Central Railroad, then proceed north along the Tennessee Central Railroad to the intersection with the Louisville and Nashville Railroad, then proceed southeast along the Louisville and Nashville Railroad to the intersection with Interstate 440, then proceed north along Interstate 440 to the intersection with Spence Lane, then proceed north along Spence Lane to the intersection with Interstate 40, then proceed east along Interstate 40 to the intersection with the Stones River, then proceed southeast along the Stones River to the intersection with the J Percy Priest Dam, then

proceed south along the shoreline of the J Percy Priest Reservoir to the intersection with the Davidson-Wilson County Line, then proceed south along the Davidson-Wilson County Line to the intersection with the Davidson-Rutherford County Line, then proceed south along the Davidson-Rutherford County Line to the intersection with the shoreline of the J Percy Priest Reservoir, then proceed north along the shoreline of the J Percy Priest Reservoir to the intersection with a private driveway, then proceed west along the private driveway to the intersection with LaVergne-Couchville Pike, then proceed north across the Four Corners Marina to the shoreline of the J Percy Priest Reservoir, then proceed north along the shoreline of the J Percy Priest Reservoir to the intersection with Savage Branch, then proceed west along Savage Branch to the intersection with a Tennessee Valley Authority power line, then proceed south between parcel lines to the intersection with Windsail Trail, then proceed south along Windsail Trail to the intersection with Windcrest Trail, then proceed west along Windcrest Trail to the intersection with Hobson Pike, then proceed northeast along Hobson Pike to the intersection with Smith Springs Parkway, then proceed northeast along Smith Springs Parkway to the intersection with Cambridge Drive, then proceed northwest along Cambridge Drive to the intersection with Cambridge Close, then proceed northwest along Paddington Way to the intersection with Smith Springs Parkway, then proceed northwest along Smith Springs Parkway to the intersection with Mount View Road, then proceed southwest along Mount View Road to the intersection with Seasons Drive, then proceed northwest along Seasons Drive to the intersection with Dove Creek Road, then proceed northwest along Dove Creek Road to the intersection with Country Way Road, then proceed northwest along Country Way Road to the intersection with Daisy Trail, then proceed northeast along Daisy Trail to the intersection with Shakertown Road, then proceed north along Shakertown Road to the intersection with Windsor Green Drive, then proceed northeast along Windsor Green Drive to the intersection with Hillshire Drive, then proceed east along Hillshire Drive to the intersection with Smith Springs Road, then proceed north along Smith Springs Road to the intersection with a private drive, then proceed west along the private drive to the intersection with Anderson Road, then proceed south along Anderson Road to the intersection with Nautilus Drive, then proceed southwest along Nautilus Drive to the intersection with Lake Terrace Drive, then proceed southwest along Lake Terrace Drive to the intersection with Brantley Drive, then proceed southwest along Brantley Drive to the intersection with Mossdale Drive, then proceed northwest along Mossdale Drive to the intersection with Rural Hill Road, then proceed northeast along Rural Hill Road to the intersection with Smith Springs Road, then proceed west along Smith Springs Road to the intersection with Bell Road, then proceed southwest along Bell Road to the intersection with Nashboro Boulevard, then proceed west along Nashboro Boulevard to the intersection with Nashboro Greens, then proceed northwest along Nashboro Greens to the intersection with Longhunter Court, then proceed south along Longhunter Court to the intersection with Nashboro Boulevard, then proceed southwest along Nashboro Boulevard to the intersection with the Tennessee Valley Authority power line, then proceed northwest along the Tennessee Valley Authority power line to the intersection with Rollingwood Lane, then proceed northeast along Rollingwood Lane to the intersection with Rambllingwood Court, then proceed northwest along Ramblingwood Court to the intersection with Terrywood Lane, then proceed west along Terrywood Lane to the intersection with Borowood Drive, then proceed south along Borowood Drive to the intersection with Murfreesboro Pike, then proceed south along Murfreesboro Pike to a point south with British Woods Apartments, then proceed from that point southwest to the intersection with British Woods Drive, then proceed west along British Woods Drive to a point being the western boundary of the British Wood Apartments, then proceed south to a point being the northern boundary of the Ransom Park subdivision, then proceed northwest along the boundary of the Ransom Park subdivision to the intersection with Mullens Road, then proceed southwest along Mullens Road to the intersection with Mullis Road, then proceed west along Mullis Road to the intersection with Bush Road, then proceed northwest along Bush Road to the intersection with Mullins Drive, then proceed southwest along Mullins Drive to the intersection with the Louisville and Nashville Railroad, then proceed west approximately 390 feet along the Louisville and Nashville Railroad to a point, then proceed north to the intersection with Mill Creek, then proceed southwest along Mill Creek to the intersection with the Louisville and Nashville Railroad, then proceed southwest along the Louisville and Nashville Railroad to the intersection with Franklin Limestone Road, then proceed west along Franklin Limestone Road to the intersection with Antioch Pike, then proceed northwest along Antioch Pike to the intersection with Interstate 24, then proceed southeast along Interstate 24 to the intersection with the Louisville Nashville Railroad, then proceed west along the Louisville Nashville Railroad to the intersection with Generosity Way, then proceed south on Generosity Way to the intersection with Reischa Court, then proceed west on Reischa Court to the intersection with Donna Kay Drive, then proceed south

along Donna Kay Drive to the intersection with Eckhart Drive, then proceed west along Eckhart Drive to the intersection with Jasmine Drive, then proceed south along Jasmine Drive to the intersection with Scottwood Drive, then proceed northwest along Scottwood Drive to the intersection with Dawn Drive, then proceed south along Dawn Drive to the intersection with Paragon Mills Road, then proceed west along Paragon Mills Road to the intersection with Jonquil Drive, then proceed south along Jonquil Drive to the intersection with Recovery Road, then proceed west along Recovery Road to the intersection with Wallace Road, then proceed southwest along Wallace Road to the intersection with Edmondson Pike, then proceed southwest along Edmondson Pike to the intersection with Blackman Road, then proceed northwest along Blackman Road to the intersection with Trousdale Drive, then proceed north along Trousdale Drive to the intersection with Harding Place, then proceed west along Harding Place to the intersection with Interstate 65, then proceed north along Interstate 65 to the intersection with Thompson Lane, then proceed southwest along Thompson Lane to the intersection with Woodmont Boulevard, then proceed west along Woodmont Boulevard to the intersection with Lealand Lane, then proceed north along Lealand Lane to the intersection with 10th Avenue South, then proceed north along 10th Avenue South to the intersection with Acklen Avenue, then proceed west along Acklen Avenue to the intersection with 10th Avenue South, then proceed north along 10th Avenue South to the beginning point, the intersection with Wedgewood Avenue.

School Board District 8

Beginning at the intersection of Charlotte Avenue and the Louisville and Nashville Railroad, proceed northeast along Charlotte Avenue to the intersection with 25th Avenue North, then proceed south along 25th Avenue North to the intersection with West End Avenue, then proceed northeast along West End Avenue to the intersection with 17th Avenue South, then proceed southeast along 17th Avenue South to the intersection with Division Street, then proceed east along Division Street to the intersection with Music Square West, then proceed south along Music Square West to the intersection 17th Ave South, then proceed south along 17th Avenue South to the intersection with Wedgewood Avenue, then proceed east along Wedgewood Avenue to the intersection with 10th Avenue South, then proceed south along 10th Avenue South to the intersection with Acklen Avenue, then proceed west along Acklen Avenue to the intersection with 10th Avenue South, then proceed south along 10th Avenue South to the intersection with Lealand Lane, then continue south along Lealand Lane to the intersection with Woodmont Boulevard, then proceed east along Woodmont Boulevard to the intersection with Thompson Lane, then proceed east along Thompson Lane to the intersection with Interstate 65, then proceed southeast along Interstate 65 to the intersection with Harding Place, then proceed west along Harding Place to the intersection with Franklin Pike, then proceed south along Franklin Pike to the intersection with an unnamed stream, then proceed east along unnamed stream to the intersection with Franklin Pike Circle, then proceed north along Franklin Pike Circle to the intersection with Baxter Lane, then proceed east along Baxter Lane to the intersection with Overton Road, then proceed south along Overton Road to the intersection with Hill Road, then proceed west along Hill Road to the intersection with Stone Box Lane, then proceed southeast approximately 460 feet to the intersection with Lymington Court, then proceed south along Lymington Court to the intersection with Hearthstone Lane, then proceed southeast along Hearthstone Lane to the intersection with Old Hickory Boulevard, then proceed west along Old Hickory Boulevard to the intersection with Cloverland Drive, then proceed south along Cloverland Drive to the intersection with Jones Parkway, then proceed south along Jones Parkway to the intersection with the Davidson-Williamson County Line, then proceed northwest along the Davidson-Williamson County Line to the intersection with the Harpeth River, then proceed north along the Harpeth River to the intersection with Highway 100, then proceed northeast along Highway 100 to the intersection with Harpeth Trace Drive, then proceed northwest along Harpeth Trace Drive to the intersection with the Louisville and Nashville Railroad, then proceed northeast along the Louisville and Nashville Railroad to a point approximately 580 feet southeast of the intersection with Harpeth Trace Court, then proceed northwest from that point to the intersection with Harpeth Trace Court, then proceed northwest along Harpeth Trace Court to the intersection with Harpeth Trace Drive, then proceed east along Harpeth Trace Drive to a point being the western boundary of the Harpeth Trace Estates subdivision, then proceed along the boundary of the Harpeth Trace Estates subdivision to the intersection with Highway 70 S, then proceed northeast along Highway 70 S to the intersection with Harding Pike, then continue northeast along Harding Pike to the intersection with West End Avenue, then continue northeast along West End Avenue to the intersection with Interstate 440, then proceed north along Interstate 440 to the intersection with the Louisville and Nashville Railroad, then proceed northeast along the Louisville and Nashville Railroad to the beginning point, the intersection with Charlotte Avenue.

School Board District 9

Beginning at the intersection of the Davidson-Cheatham County Line and the Cumberland River, proceed east along the Cumberland River to the intersection with Briley Parkway, then proceed southwest along Briley Parkway to the intersection with Interstate 40, then proceed east along Interstate 40 to the intersection with the Louisville and Nashville Railroad, then proceed south along the Louisville and Nashville Railroad to the intersection with #1198 Alley, then proceed east along #1198 Alley to the intersection with 40th Avenue North, then proceed south to the intersection with Elkins Avenue, then proceed east along Elkins Avenue to the intersection with Interstate 440, then proceed south along Interstate 440 to the intersection with West End Avenue, then proceed west along West End Avenue to Harding Pike, then proceed southwest along Harding Pike to the intersection with Highway 70 South, then continue southwest along Highway 70 South to a point being the western boundary of the Harpeth Trace Estates subdivision, then proceed southwest along the boundary of the Harpeth Trace Estates subdivision to the intersection with Harpeth Trace Drive, then proceed west along Harpeth Trace Drive to the intersection with Harpeth Trace Court, then proceed south along Harpeth Trace Court to its terminus, then proceed southeast approximately 580 feet to the intersection with the Louisville and Nashville Railroad, then proceed southwest along the Louisville and Nashville Railroad to the intersection with Harpeth Trace Drive, then proceed southeast along Harpeth Trace Drive to the intersection with Highway 100, then proceed southwest along Highway 100 to the intersection with the Harpeth River, then proceed south along the Harpeth River to the intersection of the Davidson-Williamson County Line, then proceed west along the Davidson-Williamson County Line to the intersection with the Davidson-Cheatham County Line, then proceed north along the Davidson-Cheatham County Line to the beginning point, the intersection with the Cumberland River.

Appendix Three. Electric Power Board

Editor's note—This Appendix consists of Articles 42 and 43 of the Charter of the former City of Nashville (Private Acts 1947, chapter 246, as amended), with modifications limited to those changes necessary and proper to constitute the electric power board an agency of the metropolitan government.

ARTICLE 42

BE IT FURTHER ENACTED, That The Metropolitan Government of Nashville and Davidson County, in its corporate capacity is hereby authorized and empowered to:

1. To purchase, construct, lease, or otherwise acquire, and to maintain, improve, operate and regulate, either within or without the corporate limits of said metropolitan government, an electric light and power plant and/or an electric system, including distribution system and substations, together with all necessary or appropriate equipment, appliances and appurtenances, for the proper operation thereof, for the purpose of lighting public buildings, streets, parks and other municipal property, and for any and all other purposes, including the production of electricity for resale at wholesale to the United States, the state, or any municipality, or to any private person, firm or corporation, and for the sale of electric service or current at retail to the United States, the state, or any municipality, or to any person, firm, public or private corporation, for light, heat, power, or any other purpose whatsoever, or to any other users or consumers of electric power and energy and to any person, firm, public or private corporation, or to any other users or consumers of electric power and energy.

2. To acquire, improve, or use jointly with any other municipality, a transmission line or lines, together with all necessary and appropriate facilities, equipment and appurtenances, for the purpose of transmitting power and energy and/or connecting their respective electric plants with a wholesale source of supply, and to this end the metropolitan government may provide by contract for the method of holding title, for the allocation of responsibility for operating and maintenance, and for the allocation of expenses and revenues.

3. To accept grants, loans or other financial assistance from the United States of America, or the Federal Emergency Administrator of Public Works, the Tennessee Valley Authority, or any other similar agency, instrumentality or corporation of the Untied States of America which has heretofore been, or may hereafter be, created by or pursuant to any Act or Acts of Congress of the United States of America.

4. To contract debts for the acquisition or improvement of any electric plant and/or distribution system; to borrow money; to issue its bonds to finance such acquisition or improvements; to provide for the rights of the holders of the bonds and to secure the bonds as hereinafter provided, and to pledge all or any part of the revenues derived from electric service to the payment of such debts or repayment of money borrowed.

5. To acquire, hold, and subject to the applicable provisions of any bonds or contracts, to dispose of any property, real or personal, tangible or intangible, or any right or interest in any such property in connection with any electric plant, and whether or not subject to mortgages, liens, charges, or other encumbrances but disposition of all, or substantially all, of its electric plant and/or distribution system may not be made except as herein provided.

6. To make contracts and execute instruments containing such covenants, terms and conditions, as in the discretion of the metropolitan government may be necessary, proper or advisable for the purpose of obtaining loans from any source, or grants, loans, or other financial assistance from any federal agency; to make all other contracts and execute all other instruments, which in its discretion, may be necessary, proper, or advisable, in or for the furtherance of the acquisition, improvement, operation and maintenance, of any electric plant and/or distribution system, and the furnishing of electric service; and to carry out and perform the covenants, terms and conditions of all such contracts or instruments.

7. To enter on any lands, waters and premises for the purpose of making surveys, soundings and examinations in connection with the acquisition, improvement, operation or maintenance of any electric plant and/or distribution system, and the furnishing of electric service.

8. To do all acts and things necessary or convenient to carry out the powers expressly given in this article

9. That the metropolitan government, directly or through the electric power board hereinafter created, may use any right-of-way, easement or other similar property right necessary or convenient in connection with the acquisition, improvement, operation or maintenance of an electric or power plant and/or distribution system, held by the state, any county or other municipality, provided that the state, or such other municipality shall consent to such use.

10. There is hereby created the Electric Power Board of The Metropolitan Government of Nashville and Davidson County, composed of five members. The members of the Electric Power Board of the City of Nashville in office at the effective date of this Charter, either as appointed members or as holdover members until successors are appointed and qualified, shall be the first members of the electric power board of the metropolitan government.

The terms of office of the members of the electric power board of the metropolitan government shall be for five years, except that the first terms of office of such members shall relate back to the beginning of the terms of office of the members of the Electric Power Board of the City of Nashville who are holding such offices under appointments, and to the end of the terms of office of the members of the Electric Power Board of Nashville where the terms of office for which they were appointed have expired and such members are holding such offices until their successors are appointed and qualified, so that the first terms of office of the members of the electric power board of the metropolitan government will relate back to July 1, 1954, July 1, 1955, July 1, 1956, July 1, 1957 and July 1, 1958, respectively, and will expire on July 1, 1959, July 1, 1960, July 1, 1961, July 1, 1962 and July 1, 1963, respectively; and thereafter each successive terms of office shall each be for a period of five years from the date of expiration of the preceding term of office.

Any of the first members of the electric power board of the metropolitan government who, at the effective date of this Charter shall have been holding office as a member of the Electric Power Board of the City of Nashville after the expiration of their term of office until their successors were appointed and qualified, shall continue to be members of such electric power board of the metropolitan government until the appointment of a member by the mayor and confirmation of such appointment by the metropolitan council as provided herein to succeed such holdover member for the unexpired term of the term of office in which such holdover member is serving as a member.

All members of the electric power board of the metropolitan government who are appointed by the mayor and whose appointment is confirmed by the metropolitan council as herein provided shall serve as such members for the term of office to which they are appointed, and until their successors are appointed and qualified.

A chairman and vice-chairman shall be elected by and from the members of the board, by a majority vote, and a new chairman and vice-chairman shall thereafter be selected in like manner by the board each year. The members of said board shall serve without compensation.

No person shall be eligible for election or appointment to membership on the board unless he shall have been a bona fide freeholder or householder or taxpayer in Davidson County for at least three years next preceding the date of his appointment or election; at least thirty years of age and a citizen of the United States. If any member of the board shall cease to possess any of the qualifications for his office, as above enumerated or hereinafter prescribed, a vacancy shall thereupon immediately occur and his office shall be filled as hereinafter provided.

When the term of office of any member or members of said board shall have expired, or when any vacancy in the board occurs by reason of death, resignation, removal or other cause, the vacancy or vacancies shall be filled by appointment by the mayor, subject to confirmation by the metropolitan council. Terms of office of members of the board shall be for five years, except members appointed to fill vacancies in unexpired terms or members holding office after the expiration of their terms of office until their successors are appointed and qualified.

11. That the members of said board first appointed and qualified hereunder, and all other members thereof, before entering upon the discharge of the duties of their office shall take and subscribe to an oath before some person authorized to administer an oath in Davidson County, as follows:

"I do solemnly swear that I am a citizen of the United States of America, that I am not an officer, director, employee or agent of any company producing, selling or furnishing electric light, power, current or services; that I do not now hold any public office, nor am I an applicant or candidate therefor; that I will faithfully and honestly discharge the duties of my office."

12. That at all meetings three members of the board shall constitute a quorum, and the board shall act by vote of a majority present at any meeting attended by a quorum.

In addition to a chairman and a vice-chairman, there shall be a secretary, a treasurer, a general manager, a general counsel and such other officers, agents, heads of departments, or other employees as may be necessary for the operation of the board, and for the effective operation of the electric plant and/or distribution system, whose compensation, wages, or salaries shall be payable out of the revenues derived from the operation of the board, and said board shall fix and prescribe their several duties, subject to the limitations and provisions of this Charter.

The board shall fix the amount of bonds to be required of the secretary-treasurer and all others who are to handle or to be responsible for the funds and/or property of the board, or the metropolitan government, hereunder, and all such bonds shall have as surety thereon some approved bonding or surety company.

The board shall hold public meetings, at least once each month, at such time and place as it may determined. Changes in the time and place of such meeting shall be made known to the public in some suitable manner to be prescribed by the board. The board is also authorized and empowered to prescribe a set of by-laws and reasonable rules for its government and procedure, and shall also

provide rules not inconsistent with the provisions of this Charter for carrying into execution the powers and authority conferred by this Charter.

With reference to the properties, rights, and interests of the metropolitan government, to be acquired by or operated under the provisions of this article, as is herein otherwise provided, all agreements, contracts, transfers and conveyances in connection therewith, shall be made and executed, and all such properties shall be acquired, held, owned and transferred and conveyed in the name of the Metropolitan Government of Nashville and Davidson County, and all such contracts, agreements, transfers and conveyances shall be signed by the chairman or vice-chairman of the board and attested by the secretary or assistant secretary. Provided, however, that the board may, by-law or regulation, delegate to the chairman or the general manager or other employee of said board the right to make, let, sign, and otherwise execute all such contracts, agreements, deeds, transfers or other conveyances, where not in excess of ten thousand ($10,000) dollars is involved, which the board is so authorized to make, and subject to such conditions and requirements as the board may, by regulation or by-laws, prescribe; and provided further that, in the absence of any by-law or rule of the board, the general manager shall have authority to make and execute such contracts and agreements which involve less than five thousand ($5,000) dollars in amount.

13. The general manager shall have charge of all the equipment and properties of the board; all construction, and the immediate management and operation of the electric light and power plant and distribution system, under the direction and supervision of the board as may be provided from time to time by by-laws or regulations, and shall be chargeable with the enforcement and execution of all rules, regulations, programs, plans, and decisions made or adopted by the board. He shall make and keep full and complete books and records, which shall at all times be subject to the supervision, direction, and control of the board.

14. The general counsel, whose salary shall be fixed by the power board, shall have general charge and supervision of the legal work in connection with the operations and conduct of the board's affairs, and shall do and perform all such other acts and services of a legal nature as may from time to time be required of him by the board.

15. That said electric power board of the metropolitan government be, and it is, hereby authorized to purchase, construct, erect or otherwise acquire, and to maintain and operate the electric power plant, distribution system, substation, etc., hereinbefore provided for; and said board shall have full power and authority to purchase, rent, lease or otherwise acquire any and all kinds of property, real or personal, for the said metropolitan government, in order to carry out the powers herein granted, and also to enter into any and all contracts with the Tennessee Valley Authority, or other entities, persons, firms, or corporations, public or private, for the furnishing of electric current to the metropolitan government, for use or resale as provided herein, and to enter into any other contracts with any other persons, partnerships, associations, or public or private corporations which may be by said board deemed necessary or expedient in exercising said powers; and said board shall have full control over the erection, construction, maintenance and operation of said plants and properties, with full power to make rules for the control and maintenance of said plants and properties, the manner of operation, and the employment of officials and employees of every kind. Said board may acquire by purchase an existing electric power plant and/or distribution system with substation appurtenances, equipment, etc., and it is authorized to carry on all necessary or proper negotiations therefor; and it is authorized to make the necessary surveys and enter into contracts for the construction of such power plant and/or distribution system, substations, etc., and the equipment and appliances necessary or appropriate thereto. The board is expressly authorized and empowered to make and enter into all necessary or proper contracts with the Tennessee Valley Authority, or other agencies, for the furnishing of electric current to the metropolitan government, to be used either by said metropolitan government for its own purposes, or to be sold for light, power, heat or any other purpose whatsoever, and in this connection may agree on rates for the sale of such current.

For the purpose of constructing, equipping, maintaining, and operating the electric power plant and/or distribution system mentioned in this article, the board is expressly authorized and empowered to issue and sell short term notes, made payable out of the revenues from the electric power plant and/or distribution system mentioned herein. The amount of said short term notes outstanding at any time shall not exceed three million ($3,000,000) dollars and said notes shall mature not more than three years from the date of said notes.

16. That disposition of all, or substantially all, of the electric plant and/or distribution system acquired by means of the bonds issued hereunder, may only be made upon recommendation of the board, with the approval of the mayor and metropolitan council, and a majority of those voting in an election to be held as in this Article provided. In the event it is desired to so dispose of all, or substantially all, of such property, the board shall make recommendations to that effect to the mayor, such recommendations to contain the information required to

be included in a resolution for submission to the voters in an election to be held as hereinafter provided, and thereupon, if the same is approved by the mayor, he shall prepare and submit to the metropolitan council, and the metropolitan council shall adopt, a resolution which shall state in substance:

(a) That the electric power board has recommended, and the mayor and metropolitan council have approved, the proposed disposition.

(b) A full description of the property of which disposition is proposed to be made.

(c) The proposed purchaser or purchasers thereof.

(d) The purchase price.

(e) The terms or conditions of sale, if such disposition is not to be for cash payable in full at the time of the proposed disposition.

(f) The date on which an election will be held to consider such disposition.

(g) The place or places where votes in such election may be cast.

(h) The hours between which such voting places shall be open.

If said resolution is adopted, an election will be called in conformity with the resolution, and said resolution shall be published in full at least once, not less than fifteen (15) days prior to the date fixed for the election, in a newspaper published and having general circulation in the entire area of the metropolitan government. At such election the ballots shall contain the words, "For the disposition of the Electric Plant and/or Distribution System", and "Against the disposition of the Electric Plant and/or Distribution System", as the case may be.

The election herein provided for shall be conducted and ballots shall be prepared, in the same manner as is now, or then may be, provided by law for the holding and conducting of general elections for the metropolitan government under its Charter and the provisions of the general election laws of the State of Tennessee. The results of such elections shall be canvassed, declared and certified, and the records of such results and returns shall be kept in the same manner as is now so provided by law, and when any such election is so held and the results so canvassed and certified in conformity with these provisions, it shall, after the delivery of, and payment for, said property, disposition of which was so voted upon at such election, be conclusive evidence of the result of such election.

17. That said board is expressly authorized to exercise the power of eminent domain on behalf and in the name of the Metropolitan Government of Nashville and Davidson County, in order to acquire any property, real or personal, necessary or useful in exercising the power and authority conferred by this article, and any property so acquired shall be paid for out of the earnings of the power plant and/or distribution system herein provided for, or from the proceeds of the bonds authorized by this article. The title to all property taken for the purpose of exercising the powers conferred by this Charter, whether acquired by contract or by exercise of the power of eminent domain, shall be taken in the name of the Metropolitan Government of Nashville and Davidson County; and such condemnation proceedings as may be deemed necessary or proper shall be pursuant to, and in accordance with, the provisions of sections 29-16-101 to 29-16-124, inclusive, Tennessee Code Annotated.

18. That said electric power board of the metropolitan government shall have exclusive management and control of the operation of said electric power plant and/or distribution system. Except as otherwise provided in this article, said board shall have the authority, subject to the applicable civil service provisions, to determine the number of positions and employ persons to fill vacancies in said positions, and to fix the salaries or compensation within the limits of the pay plan applicable to this article, and prescribe the duties of all of its officers, agents, representatives, and employees; provided, said Board may, in its discretion, delegate to the general manager to be selected by it, such power and authority in addition to that conferred herein, as it may deem necessary and proper. All revenues collected from the operation of the said power plant and/or distribution system, or any promotional activity conducted or operated in connection therewith, shall be deposited in the name of the metropolitan government, and kept in a separate fund or funds, and shall only be disbursed upon checks or vouchers of the said board drawn against said fund or funds, and which checks or vouchers shall be signed by the secretary or an assistant secretary, of the board, and approved or countersigned by the general manager, or in such other manner as the board may, from time to time, prescribe. As of the first days of January and July of each year, said board shall make and file, in triplicate, with the mayor of the metropolitan government, a statement showing the financial condition of the board, and the system operated by it, together with such other information as the mayor shall from time to time require, and which shall cover the whole of the operations during the preceding six (6) months. Said reports shall be filed on or before the first days of February and August, respectively, of each year. A copy of said financial statement shall also be filed with the clerk of the metropolitan government at the time it is filed with the mayor, and a further copy, or certified abstract thereof, shall be published once in a newspaper of general

circulation in the entire area of the metropolitan government. The board shall provide a proper and sufficient accounting system.

19. That the board shall fix the rates to be charged for current, power, light and heat, or other services furnished, and which rates shall be fair, reasonable and uniform for all customers in the same class, but different rate schedules may be applied to different classes of customers as may be determined by the board. Rates within the urban services district of the metropolitan government may be less, but shall in no event be greater than rates for the same class of service outside the urban services district. Rates for electric service shall be fixed in conformity with the resale rates which the metropolitan government may be required to charge under or by reason of the metropolitan government's contractual obligations with the Tennessee Valley Authority, and in all other respects in conformity with the then existing contract executed by the former city of Nashville and/or the Metropolitan Government of Nashville and Davidson County with the Tennessee Valley Authority.

20. That the board shall charge the metropolitan government for any electric service furnished it, at the rates applicable to other customers of the same class served under similar conditions and the revenue derived from such service shall be treated as all other revenues of said board.

21. That a copy of the schedule of the current rates and charges in effect from time to time, and a copy of all resolutions and regulations of the board relating to electric service shall be kept on public file at the main and all branch offices of any plant or plants operated by it, and also in the office of the clerk of the metropolitan government.

The officers, agents and employees of the board are prohibited from appropriating or using any of the moneys, revenues, assets or property of the board, or of the metropolitan government, or its credit either directly or indirectly by way of donations for festivities, exhibits, shows, lectures, pageants, excursions, decorations or parades, and shall not give or grant to any person or persons any reduction or other benefit of any kind in rates or service by the board, nor shall they make or allow any discrimination in favor of any purchaser of power, light, current or other service not enjoyed by others of the same class and taking power under like conditions; provided, nothing in this article shall prevent participation in normal electric promotion activities.

22. That said board shall set up a sufficient fund as an insurance fund, and which shall be kept in a separate account and invested in securities now authorized for the sinking fund of the metropolitan government, and which, together with any income thereon or additions thereto, shall be used to pay and discharge any liabilities of said board and of the metropolitan government by reason of the acquisition, creation, owning, operation, maintenance or other use of said power plant and/or distribution system, or in lieu of such fund, the board, in its discretion, may take out and carry such insurance policies as may be necessary or proper, or may set up necessary contingency reserves to protect against such liabilities.

The board in its judgment and discretion is further authorized and empowered to avail itself of the benefits of any existing or future laws of the United States, or of the State of Tennessee, with reference to Social Security, old age benefits, or pensions on behalf of its employees, at any time, when, under the terms of such acts or laws, it may be authorized or permitted so to do, and in connection therewith may make such payments and do such other acts and things as may be by said laws or acts authorized or provided. Said board in its judgment and discretion shall likewise be authorized and empowered to take out, purchase, or otherwise provide for such employee retirement insurance, survivor insurance and other insurance as it may be determined to be to the best interest of the employees, and as is justified by the revenues and earnings of the board.

23. That when any contract is made by the board with any independent contractor for new construction, improvements, or extensions, such contract shall contain a provision that wages to be paid by said contractor on such work shall conform to the prevailing wage scale, as approved by the United States Department of Labor for Nashville and vicinity.

24. That neither the mayor, the metropolitan council, nor any other officer, department, board or commission of the metropolitan government, shall have or exercise any authority whatsoever over the electric power board created under the terms and provisions of this Charter, other and except to the extent herein expressly provided, and the provisions of this article shall prevail over any conflicting provisions appearing in any other article in this Charter.

25. That the revenues derived from the operations of the board shall be applied and used only as follows:

(a) Revenues shall first be used in payment of all current operating expenses, including, without limitation, salaries, wages, costs of materials and supplies, insurance, current and/or power at wholesale, necessary cost of repairs, and all other costs and expenses of maintenance, operation and upkeep.

(b) From remaining revenues the board shall next currently provide for payment of interest accrued on all bonds issued pursuant to the provisions of this Act, and for amortization charges on all such bonds of other

indebtedness, and for sinking fund payments thereon, and for which purpose there will be paid monthly or semiannually to the treasurer of the metropolitan government a sum sufficient to pay such interest as the same comes due, and to pay and discharge the principal of said bonds promptly at maturity, and all of which shall be kept by the treasurer of the metropolitan government in a separate sinking fund.

(c) After making provisions for items (a) and (b), the remaining revenues shall be used currently to set up reasonable reserves, but not more than is sufficient for replacements, depreciation, extensions or new construction, for contingencies, and to provide a reasonable amount of cash working capital.

(d) Thereafter, and from remaining revenues, the board shall pay into the general fund of the metropolitan government a return on its investment as authorized and permitted by the then existing contract of the former City of Nashville and/or the metropolitan government with the Tennessee Valley Authority, and also a tax equivalent, in amount to be determined by application of the prevailing municipal tax rate to the value of the property used by the metropolitan government and said board in electric operations, and which tax equivalent may be increased by the board in its discretion, so as to provide a similar tax return for the state or any county, as may be permitted, provided or required by the then existing contract of former City of Nashville and/or the metropolitan government with the Tennessee Valley Authority. All remaining revenues shall be considered surplus and shall serve as a basis for reduction or elimination of surcharges and/or reduction of rates.

26. That the Metropolitan Government of Nashville and Davidson County be, and it is hereby authorized, in its corporate capacity, to issue and sell its bonds, to be signed by the mayor and countersigned by the treasurer of said metropolitan government, and the seal of the metropolitan government to be affixed, impressed, imprinted or reproduced thereon, and attested by the clerk of said metropolitan government, for the purpose of acquiring any existing electric power plant and/or distribution system, or for the purpose of constructing, equipping, maintaining and operating any electric power plant and/or distribution system, or to reconstruct, extend or improve any electric power plant and/or distribution system or systems. The signatures on said bonds of the mayor, treasurer of the metropolitan government and clerk of the metropolitan government may be either manual or facsimile signatures; provided, however, that the signature of at least one of said officials on said bonds shall get a manual signature. Said bonds shall be revenue bonds, and said revenue bonds may be issued only when the electric power board of the metropolitan government shall determine by resolution duly adopted that the revenues derived from the electric system will be sufficient to pay the principal of and interest on all bonds issued hereunder then outstanding and the bonds to be issued, and to comply with all covenants made with the holders of said bonds then outstanding or to be issued; and provided further, that the rank and priority as between different issues of said bonds shall be as provided in the resolutions or ordinances authorizing such issues of bonds.

27. That the bonds herein authorized shall be payable in lawful money of the United States of America, and shall be executed in denominations of one thousand ($1,000) dollars. Said bonds shall be issued as serial bonds, maturing in such amounts and at such times not more than forty (40) years from the date of the issuance thereof as the board may determine, and shall bear interest at the rate of not more than six (6%) percent per annum, payable semiannually, said interest installments to be evidenced by coupons attached to the bonds, which coupons shall bear the printed or lithographed facsimile of the signatures of the mayor and treasurer and clerk of said metropolitan government; and said bonds and coupons shall be payable to bearer and the bonds shall be sold at the best price obtainable, and shall in no case be sold for less than par and accrued interest. Said bonds shall be issued from time to time in such amounts, and shall bear dates as the board shall direct; and it shall be the duty of the mayor and the metropolitan council of the metropolitan government to provide by resolution or ordinance for the issuance of said bonds as directed by said board. Said bonds shall be known as Electric Power Bonds of the Metropolitan Government of Nashville and Davidson County, and said bonds, or any part thereof which the metropolitan government may determine or decide to issue for the purposes, and under the provisions of this article, shall be issued as revenue bonds, payable only out of said revenues of the electric plant and/or distribution system. The mayor of said metropolitan government, with the approval of the metropolitan council, shall have power and authority to sell the bonds issued under the provisions of this article to the Public Works Administration, Tennessee Valley Authority, or any federal agency, at private sale, without any public advertisement. Unless the bonds are sold to a federal agency, said bonds shall be sold at public sale, after being first advertised at least once in a newspaper of general circulation in the entire area of the metropolitan government, and once in some financial journal in New York City, and which advertisement shall be published at least five (5) days before the sale of said bonds, and the board shall have power and authority to hypothecate any or all of the bonds issued under the provisions of this article,

and to borrow thereon funds from the Tennessee Valley Authority, the Public Works Administration, or any other similar government agency or board, or from the bank. Said bonds shall contain a recital that they are issued pursuant to, and in accordance with this Charter, and such recital shall be conclusive evidence of their legality.

28. The metropolitan council may in its discretion call a referendum or election for the purpose of obtaining the approval of the voters of the acquisition or construction by the metropolitan government of any new electric power plants and/or distribution systems but shall not be required to call such election. If such election is called by the metropolitan council, it shall be held and conducted, and ballots shall be prepared in the same manner as is then, provided by law for the holding of general elections under the provisions of the general election laws of the State of Tennessee. The provisions of this section shall be deemed permissive only and no referendum or election shall be required for the acquisition or construction of any new electric power plants and/or distribution system or the issuance of revenue bonds to finance the cost thereof, except in the absolute discretion of the metropolitan council. No referendum or election shall ever be required for the acquisition or construction of additions, extensions or improvements to any existing electric power plants and/or distribution systems or for the issuance of revenue bonds to finance the cost thereof.

29. That in case any of the officers whose signatures or countersignatures appear on such bonds shall cease to be such officers before the delivery of the bonds, such signatures and countersignatures shall nevertheless be valid and sufficient for all purposes the same as though such officers had remained in office until the bonds had been delivered.

30. That all funds received from sale of the bonds provided for in this article shall be deposited with the treasurer of the metropolitan government and shall be kept in a separate fund, and said board shall have control and supervision of the expenditure thereof. Disbursements shall be made only upon warrants of the board, signed by the secretary, and approved by its chairman, and said fund shall be used solely for the purpose of defraying the cost of acquiring or constructing an electric power plant and/or distribution system, and extension thereof, and the equipment, appliances and appurtenances necessary or appropriate thereto; provided, however, that such money may also be used to pay interest maturing on said bonds during negotiation for the acquiring of any existing electric power plant and/or distribution system, or during the construction of any power plant and/or distribution system, and until the system has been put into operation. The board is authorized to incur expenses for the making of surveys and estimates of cost and of revenues, and to certify the expense thereof to the mayor of said metropolitan government, who shall pay the same from the general funds of the metropolitan government; and such payments from the general funds shall be considered as temporary loans, and shall be repaid, upon sale and delivery of said bonds, out of said bond fund.

31. That the cost of any electric power plant and/or distribution system, or the improvements thereof, shall be deemed to include all necessary expenses of preliminary surveys, estimates of costs and of revenues, and all the cost of acquiring such power plant and/or distribution system or improvements, or of the construction thereof; also the cost of all necessary or suitable property, rights-of-way, easements, and franchises; and also to include interest on bonds issued under this article maturing prior to and during the construction or acquisition of the plant or system, or improvements, together with engineering and legal expenses, expenses for plans, specifications and surveys, administrative expenses and all such other expenses as may be necessary or incidental to the financing of, acquiring or constructing and equipping an electric power plant and/or distribution system or improvements, and the placing of such power plant and/or distribution system or improvements in operation.

32. That no statute, general or special, fixing the maximum indebtedness of the said metropolitan government, or prohibiting the issuance of bonds, notes or other indebtedness, shall apply to or limit the amount of bonds that may be issued or the amount of money that may be borrowed under this article.

33. There is hereby created a statutory mortgage lien upon all the electric system of the electric power board of the metropolitan government, including all power plants and/or distribution systems thereof, and any additions, extensions or improvements thereto, to and in favor of the holders of all revenue bonds issued by the metropolitan government to finance the cost of all or any part thereof. Any holder of any of said revenue bonds may at law or in equity by suit, action, mandamus or other proceedings protect and enforce the statutory mortgage lien hereby conferred, and may by suit, action, mandamus or other proceedings enforce and compel the performance of all of the duties required by this Charter.

34. That in order to secure the payment of revenue bonds issued pursuant to this Article and interest thereon, the metropolitan government shall have the power as to such bonds, to the extent not inconsistent with the mandatory provisions hereof:

(a) After the payment of operating expenses from the gross revenue to pledge all or any part of the remaining revenue derived from the operation of the electric power plant and/or distribution system to secure the payment of the bonds and interest thereon.

(b) To covenant as to the rates and charges to be imposed and the amounts to be raised in each year by such rates and charges and the use and disposition thereof, and the board shall carry out the provisions of this covenant.

(c) To set aside a reserve or sinking fund and the relation and disposition thereof, and to provide for the redemption of revenue bonds and to provide the terms and conditions thereof.

(d) To covenant and prescribe as to what happenings or occurrences shall constitute "default" and the terms and conditions upon which any or all such bonds shall become or may be declared due before maturity and as to the terms and conditions upon which such declaration and its consequences may be waived.

(e) To covenant as to the rights, liabilities, powers and duties arising upon the breach by it of any covenant, condition or obligation.

(f) To vest in a trustee or trustees the right to receive all or any part of the income assigned to, or for the benefit of, the holder or holders of bonds issued hereunder, and to hold, apply and dispose of the same, and, the right to enforce any covenant made to secure, pay, or otherwise in relation to the bonds; to execute and deliver a trust agreement or trust agreements which may set forth the powers and duties and the remedies available to such trustee or trustees, and limiting the liabilities thereof, and describing what occurrences shall constitute default, and prescribing the terms and conditions upon which such trustee or trustees, or the holder or holders of bonds of any specified amount or percentage of such bonds, may exercise such rights and enforce any and all such covenants, and resort to such remedies as may be appropriate.

(g) To make covenants other than, and in addition to, the covenant herein authorized, of like or different character, necessary or advisable to effectuate the purpose of this article.

(h) To execute all instruments necessary or convenient in the exercise of the powers herein granted or in the performance of its covenants or duties.

(i) To provide for the replacement of lost, destroyed or mutilated bonds.

(j) The board shall carry out the agreements and covenants made by the metropolitan government with the holder or holders of revenue bonds as herein provided.

35. That any holder or holders of revenue bonds, including a trustee or trustees for holders of such bonds, shall have the right, in addition to all other rights:

(a) By mandamus or other suit, action or proceedings in any court of competent jurisdiction to enforce his or their rights against the metropolitan government, the mayor thereof, and the electric power board of said metropolitan government, and any other proper officer, agent or employee of any of them, including, but without limitation, the right to require the electric power board and any proper officer, agent or employee thereof to fix and collect rates and charges adequate to carry out any agreement as to electric power plant and/or distribution system revenues.

(b) By action or suit in equity to enjoin any acts or things which may be unlawful or a violation of the rights of such holders of bonds.

36. That the metropolitan government shall have power to confer upon any holder or holders of a specified amount or percentage of bonds the right in event of default as may be defined in any agreement with the holder or holders of such bonds or the trustee or trustees therefor:

(a) By suit, action or proceedings in any court of competent jurisdiction to obtain the appointment of a receiver of the electric power plan and/or distribution system or any part or parts thereof. If such receiver be appointed he may enter and take possession of such electric power plant and/or distribution system, or any part or parts thereof and operate and maintain the same, and collect the revenue thereafter arising therefrom in the same manner as the electric power board or the metropolitan government might do, and shall deposit such moneys in a separate account or accounts and apply the same in accordance with the obligations of the metropolitan government as the court shall direct.

(b) By suit, action or proceedings in any court of competent jurisdiction to require the metropolitan government and the electric power board of same metropolitan government to account as if they were the trustee on an express trust.

37. That all revenue bonds issued hereunder, and all interest thereon, and all revenues and other income derived from said electric system and all properties, real or personal, tangible or intangible, moneys and other assets of said electric system or of said electric power board of the metropolitan government shall be exempt from all taxation by the State of Tennessee, or any county, municipality or political subdivision or other taxing agency thereof, and all revenue bonds issued hereunder shall be and constitute eligible securities for the deposit of all state and other public funds, and shall be and constitute legal investments for banks, savings banks, executors, guardians, administrators and other fiduciaries, and for any state, county, municipality or other public funds.

38. That the powers conferred by this article shall be in addition and supplemental to the powers conferred by any other article in this Charter or any other law, and that bonds may be issued hereunder for the acquisition or

improvement of an electric plant and/or distribution system, notwithstanding that any other law may provide for the issuance of bonds for like purposes, and without regard to the requirements, restrictions or procedural provisions contained in any other law.

39. Should any of the terms or provisions of this article for any reason be held invalid, then in that event, to the extent of such invalidity, the exact terms and provisions of article 42 of the Charter of the City of Nashville as it existed at the effective date of this Metropolitan Charter shall be deemed to have been incorporated verbatim in this Metropolitan Charter in lieu of such terms and provisions contained in this article so held invalid.

ARTICLE 43

BE IT FURTHER ENACTED:

1. As used in this section, the term "employee" shall include all persons in the service of the electric power board of the former City of Nashville and/or the electric power board of the metropolitan government, on the effective date of this Charter, and/or subsequent thereto, and the provisions of this article shall apply only to such employees. The civil service and pension provisions appearing in other articles of this Charter shall not apply to the electric power board of the metropolitan government, nor to the metropolitan government when said metropolitan government is acting by and through the electric power board.

For the purpose of administration of civil service and pensions with respect to all employees of the electric power board of the metropolitan government, other than those expressly excluded herein and who shall not be under civil service nor entitled to pension benefits other and except to the extent herein provided, the electric power board of the metropolitan government and the members thereof are hereby constituted and shall be known as the electric employees' civil service and pension board, and shall have exclusive jurisdiction over the civil service and pension provisions in this article to the extent that the same are, or may be applicable to the employees of said electric power board, and to which employees its jurisdiction is expressly limited and confined.

2. The electric employees' civil service and pension board is authorized, empowered, and directed within six (6) months after the effective date of this Charter, to make all reasonable rules as it may deem necessary from time to time for the government of the employees of the electric power board of the metropolitan government, other than those expressly excluded in this article, and for carrying into effect the provisions, objects, and purposes hereof, expressly including the right to make all necessary and proper rules as to employment, discharge, compensation and classification of employees of the electric power board of the metropolitan government, in connection with these matters, and for promotion, transfer, and assignment; with reference to the granting of leaves of absence and the conditions thereof, and for all other purposes which are necessary and proper, or reasonably calculated to carry into effect the provisions hereof. The electric employees' civil service and pension board shall furnish to each employee a copy of said rules upon request therefor. Until such time as said rules are adopted by the electric employees' civil service and pension board, the existing rules of the electric employees' civil service and pension board pursuant to article 43, chapter 146, Private Acts of 1947, shall remain in full force and effect.

3. The chairman of the electric power board of the metropolitan government shall act as chairman of the electric employees' civil service and pension board and said civil service and pension board shall have the right to elect from among its own members a secretary who shall keep the records of its proceedings, or it may employ a secretary for that purpose and fix his salary and prescribe his duties, or may constitute the secretary, or any assistant secretary of the electric power board of the metropolitan government secretary of the electric employees' civil service and pension board and may fix his compensation, or additional compensation, and prescribe the duties of the office.

4. For the purpose of investigating the conduct of any employee of the electric power board of the metropolitan government, the electric employees' civil service and pension board shall have the power to issue subpoenas, compelling the attendance of witnesses, the production of books, papers, and other documentary evidence, and to punish by contempt proceedings any person failing or refusing to answer or obey said summons to give or produce testimony before said electric employees' civil service and pension board.

The electric employees' civil service and pension board shall have power to fine and imprison any persons guilty of such contempt; provided such punishment shall not exceed a fine of fifty ($50) dollars and imprisonment until the offending person shall give or produce the testimony and evidence required by said board.

The electric employees' civil service and pension board shall file an annual report with the mayor of the metropolitan government containing a general statement of its actions for the preceding year and its rules. A copy of said report shall be filed with the clerk of the

metropolitan government not less than five (5) days prior to the last metropolitan council meeting in June of each year, and shall be available for public inspection.

5. Any expenses incident to the operation of the electric employees' civil service and pension board shall be paid out of the revenues of the electric power board of the metropolitan government, and said electric power board shall make provisions therefor in such manner as it may deem necessary or proper and shall promptly pay the same, either on a budget basis, or as incurred by said board when acting as said electric employees' civil service and pension board, all necessary and proper records being kept and maintained for this purpose separate and distinct from the records of the electric power board of the metropolitan government.

6. All applications for employment by or with the electric power board of the metropolitan government shall be filed with the secretary of the electric employees' civil service and pension board, and shall be in such form and shall contain such information as may from time to time be required by the rules and regulations of said civil service and pension board.

The electric employees' civil service and pension board may examine applicants or cause them to be examined under its rules and regulations in regard to suitability, physical fitness, and other qualifications, as it may from time to time deem necessary or proper. Said board shall establish and maintain eligible lists for the various classes of positions. On each such list the eligibles shall be ranked in the order of their ratings earned in the examinations. Each person who has thus been examined shall be given written notice of his earned rating and of his relative standing on the eligible list, or of his failure to attain a place on said list.

No question in any form or application, or in any examination, shall be so framed as to elicit information concerning the political or religious opinions or affiliations of any applicant, nor shall entry be made concerning such opinions or affiliations, and all disclosure thereof by any applicant shall be discountenanced. No discrimination whatsoever shall be exercised, threatened, or promised in favor of or against any applicant for employment because of his or her political or religious opinions or affiliations.

In connection with any application for employment to any office or position with the electric power board of the metropolitan government, the electric employees' civil service and pension board may require such certificate of citizens or others having knowledge of the applicant as may be deemed necessary and proper. The electric employees' civil service and pension board, or other examining agent under this article, may refuse to examine an applicant, or, after examination, may refuse to accept an applicant as eligible, if said applicant be determined in any manner to have failed to have complied with the rules of said board, or who for any reason determined by the board is found to be unfit for election, appointment or employment.

All persons other than temporary employees employed by the electric power board of the metropolitan government, after the effective date of this Charter, shall be selected from a list of eligibles to be kept for that purpose by the secretary of the electric employees' civil service and pension board, and which list shall be furnished to the electric power board of the metropolitan government, or the general manager, upon notification that any appointment or employment is to be made to a civil service position by the electric power board.

Whenever the electric power board of the metropolitan government deems it necessary or proper that any person or persons should be employed to do or perform any work of a temporary nature, or temporarily employed on regular or routine work, it shall not be necessary to comply with the civil service requirements of this article. Such persons shall be considered temporary employees only, and shall not be subject to the conditions, limitations, and requirements of the civil service and pension provision hereof, nor entitled to the benefits, except as hereinafter provided.

7. Every position or employment by or with the electric power board of the metropolitan government shall be deemed to be a civil service position, and every employee of said board shall be deemed to be a civil service employee with the exception of temporary employees, and shall include the present employees of said board and all future employees, and all officers and agents, except that members of the electric power board of the metropolitan government, the general manager, assistant general manager, and the secretary are expressly excluded from the provisions hereof with reference to civil service, and none of said persons, nor the positions which they fill, shall be deemed or considered as under the provisions of civil service.

The board may, within its discretion, by its rules provide for a working test for every person appointed after the effective date of this Charter, to a civil service position, the period of such working test not to exceed six (6) months from the date of appointment. Until the end of such working test period, said employee is defined as a temporary employee only, and shall not be subject to the conditions, limitations, and requirements of the civil service and pension provisions of this article, nor entitled to the benefits thereof except as hereinafter provided.

8. No employee shall be called upon by any officer, agent or employee of the metropolitan government for any contribution or assessment to any political organiza-

tion or any member of any committee thereof, nor shall any employee be allowed to solicit any contribution or to sell any tickets or to procure any money by any device from any party, directly or indirectly, or to give or promise any party any office, employment, benefit, or anything of value for the purpose of influencing or obtaining the political support, aid, or vote of any person or persons; no employee shall appear at the polls at any election, primary or general, wearing a badge indicating support of any candidate, ticket, or measure in such election, nor hand out or distribute any literature concerning any candidate, ticket, or measure involved in such election, nor seek in any other manner to use his position as an employee of the electric power board to influence any voter.

The above offenses are hereby defined as political activity. For all such offenses by employees, the electric employees' civil service and pension board shall inflict such punishment as in its discretion the offense merits, subject to review as herein provided.

Nothing herein is intended to abridge the right and power of the board to create or define other offenses or to try or punish employees of the electric power board of the metropolitan government, for any offense or misconduct committed by them.

9. The electric employees' civil service and pension board shall hold at least one regular meeting in each month, and such special meetings as may be deemed necessary or proper. A special meeting may be called at any time upon the request of the chairman or any two members of the board. Three members of the board shall constitute a quorum for the transaction of all business.

10. Charges against any employee of the electric power board of the metropolitan government may be preferred by any person except a member of said board. Upon charges being preferred against any employee, such employee in the discretion of the general manager, may thereupon be suspended, pending disposition thereof.

Charges against employees of said electric power board shall be filed or brought exclusively before the electric employees' civil service and pension board. Any charges filed against any employee shall be in writing, and shall be filed in such form and manner as the board may by its rules from time to time prescribe. A copy of any such charges shall be furnished the accused employee at least fifteen (15) days prior to the trial. Said charges, or any amendment thereto, shall plainly and specifically set forth the offense or offenses charged, and shall be recorded by the board in a record kept for that purpose.

The electric power board of the metropolitan government shall have the power at any time but not more than twice in any twelve months, temporarily to suspend without pay any employee for a period not to exceed ten (10) calendar days without disciplinary charges being filed against such employee. If the offense is other than a minor one where suspension would not be a sufficient disciplinary measure, then charges must be filed.

11. Upon any charge against any employee being filed with said board, it shall, according to its own rules, determine the merits thereof and reduce its findings to writing, and may either suspend, dismiss, or otherwise punish the employee against whom such charge is made. All punishment inflicted by said board shall be entered in a journal kept for that purpose, and the board shall thereupon notify the general manager of the electric power board of the metropolitan government of any and all dismissals from office or other punishment inflicted, and said electric power board, or the general manager, shall thereupon appoint or employ another suitable person to fill the vacancy thus created.

Any such employee who is dissatisfied with the decision of the electric employees' civil service and pension board shall have the absolute right at any time within thirty (30) days to appeal the case to the circuit court of Davidson County, where it shall be tried de novo, or said employee may, if he prefers, file petition for certiorari and otherwise follow the procedure set out in sections 27-9-101 to 27-9-113, inclusive, Tennessee Code Annotated.

Any civil service employee who feels that he has any just complaint in connection with his employment, shall have the right at any time to submit the matters to said board for hearing and determination. All such submissions shall he in such form as may be prescribed by the rules of the board, and shall be tried in the same manner as complaints against employees.

12. No employee of the electric power board of the metropolitan government, except temporary employees and provisional employees, shall be discharged, suspended for more than ten (10) days nor oftener than twice in any twelve (12) months, or otherwise punished except for just cause and after the filing of charges and trials as hereinbefore provided.

13. Said board shall ascertain the duties, authority, and responsibilities of all civil service positions, and group all such positions into classes based upon their duties, authority, and responsibilities, and allocate each position to the appropriate class in the classification plan. The board shall adopt a pay plan which shall include, for each class of positions, a minimum and a maximum rate, and intermediate rates. In establishing such rates the board shall give consideration to the qualifications and experience required for such positions, the prevailing rates of pay for the services performed and for compa-

rable services in the various departments of the metropolitan government and in other public and private employment.

Amendments in the classification plan and the pay plan may from time to time be made by the said board.

14. The said board shall establish a system of service ratings for the employees. Such service ratings and seniority shall be the principal factors in determining the order of promotion, layoffs, abolition of positions, and reemployment.

15. The electric power board of the metropolitan government shall provide pensions and other benefits for its employees, other than those expressly excluded under this Section as follows:

(a) Said board shall provide and carry, either as a separate fund or reserve or by way of insurance, workmen's compensation for all of its employees, the benefits of which shall not be less than those provided from time to time by the Workers' Compensation Law (T.C.A. § 50-6-101 et seq.).

(b) Whenever any employee of the electric power board of the metropolitan government, whether such employee is under civil service or not, shall in the line and course of his employment and in the actual discharge of the duties of his position, sustain personal injuries by external and violent means or by accident, resulting in the death of such employee within twelve (12) months from the time such personal injury was sustained, said board upon allowance of claim, as herein provided, shall pay to the surviving spouse of such employee, if he leaves a surviving spouse, or to the personal representative of such employee if he leaves no surviving spouse, for the benefit of the minor child or children of such employee, if he leaves minor child or children surviving him, or to the personal representative of such employee for the benefit of the estate of such employee, if such employee leaves surviving him no minor child or children or spouse, the sum of one thousand ($1,000) dollars; provided, however, that no such payment shall be made in the case of death of any such employee where the personal injuries resulting in his death were due to the wilful misconduct, intoxication, use of narcotic drugs, or disobedience of orders on the part of such employee, or were intentionally self-inflicted by such employee, or the death of such employee was due to any sickness or disease of such employee, and, provided that written notice of such personal injuries shall be given to the said board, or to the general manager, within thirty (30) days after such personal injuries were sustained.

Upon any notice being given under this provision, said board shall, under its rules, make or cause to be made a full investigation of the facts relevant to the claim and shall determine whether or not the claim is legally and properly payable. The decision of said board on all questions of fact involved in any such claim under the provisions of this article shall be final and shall be subject to review only for illegality or want of jurisdiction.

Payment of said sum of one thousand ($1,000) dollars upon any claim allowed hereunder shall be at the rate of three hundred ($300) dollars in cash at the time the claim is allowed, and the balance of seven hundred ($700) dollars be paid fifty ($50) dollars per month thereafter for fourteen (14) consecutive months, and, provided that all payments made pursuant hereto shall be free from the claims of creditors and shall not be subject to attachment, garnishment or other process of law.

(c) The electric power board shall provide such pension benefits as in its judgment and discretion may properly be provided from the revenues of the board, to be either by an insurance program in standard recognized forms of insurance, or by way of special funds or reserves, all consistent with the contract between the former City of Nashville and/or The Metropolitan Government of Nashville and Davidson County and the Tennessee Valley Authority, dated as of May 4, 1939, and subsequent contracts, and the provisions of this Charter, and provided that any such pension provision shall be according to the rules of said board, and upon such plans as it may prescribe.

(d) Such other insurance as the revenues of the board may justify, and as it may determine to be the best interest of employees, may be also provided.

16. The electric employees' civil service and pension board shall have the exclusive right to fix and determine all matters relating to the granting or revoking of pension or other benefits to or for all employees of the electric power board of the metropolitan government, and upon the terms and conditions prescribed by this article.

17. The electric power board of the metropolitan government shall have exclusive authority to determine the amount, extent, and nature of the benefits and pensions to be provided for its employees, in conformity with this Charter and said contracts with the Tennessee Valley Authority; provided, that any time which may be lost while serving in the armed services, shall not be counted against such person in computing the length of time of service.

In order to provide benefits and pensions under this article, the electric power board of the metropolitan government shall have the right to acquire contributions from its employees, other than temporary and provisional employees, not to exceed five (5%) percent of the salary of each employee, said five (5%) percent to be in addition to any employee contribution with reference to

Social Security and/or old age benefits. The amount to be fixed by resolution of the electric power board and to be deducted from the salary or compensation of said employees each pay period, and all other and further expenses of providing said benefits and pensions shall he paid from the revenues of said board.

Refund of any contribution made by employees and the payment of all benefits or pensions shall be determined according to this article, the rules, and contracts of said electric power board of the metropolitan government; provided that such rules and contracts shall be uniform as to all employees of the same class or condition and no discrimination whatsoever shall at any time he made.

The members of the electric power board of the metropolitan government are expressly excluded from the provisions of this article.

18. Any fund established or created by the electric power board of the metropolitan government for the purpose of carrying out the insurance or pension provisions of this section and under the rules and regulations of said board shall he kept in a separate fund and shall only he disbursed upon the judgment and determination of the electric employees' civil service and pension board under its rules and regulations.

19. That this article shall be liberally construed and interpreted, and the persons who on the effective date of this Charter have, for at least six (6) months immediately prior thereto, been employees of the electric power board of the former City of Nashville, created pursuant to chapter 246, Private Acts of 1947, as amended, are hereby appointed and designated to the corresponding positions or employments under this Charter and shall serve and discharge the respective duties of the corresponding respective positions or employments under this Charter until they shall be removed or discharged in conformity with the provisions of this article, or until their respective positions or employments are otherwise vacated. Provided, that no corresponding respective civil service office, employment or position provided for or created under the provisions of the preceding article of this Charter, may be vacated except pursuant to and in conformity with the civil service provisions of this article.

20. Should any of the terms or provisions of this article for any reason be held invalid, then in that event, to the extent of such invalidity, the exact terms and provisions of article 43 of the Charter of the City of Nashville as it existed at the effective date of this Metropolitan Charter shall be deemed to have been incorporated verbatim in this Metropolitan Charter in lieu of such terms and provisions contained in this article so held invalid.

Appendix Four. Transit Authority.

Editor's note.—This Appendix consists of Article 64 of the Charter of the former City of Nashville, as added by Private Acts 1953, chapter 487, and as amended by Private Acts 1955, chapter 307, and Private Acts 1957, chapter 165, with modifications limited to those changes necessary and proper to constitute the transit authority an agency of the metropolitan government.

ARTICLE 64

1. (a) There is hereby created and established an agency of the metropolitan government to be known as the metropolitan transit authority, sometimes hereinafter designated as transit authority. The transit authority shall be composed of five (5) members, and all of said members shall have been residents of the metropolitan government area for at least three (3) years prior to their becoming members of the metropolitan transit authority. No person shall be eligible as a member of the metropolitan transit authority who holds any other elective or appointive public office or employment or who is employed by or has financial interest in a transit company regulated by said transit authority of the metropolitan government.

(b) The terms of office of all members, except the original members hereinafter named and except those elected to fill unexpired terms, shall be five (5) years, with staggered terms, so that the term of one (1) member shall end on May 1st of each year, beginning with 1954.

(c) The original members of the transit authority shall be appointed by the mayor of the City of Nashville on or before May 15, 1953. One (1) of said members so appointed shall serve until May 1, 1954, one (1) shall serve until May 1, 1955, one (1) shall serve until May 1, 1956, one (1) shall serve until May 1, 1957, and one (1) shall serve until May 1, 1958. Vacancies in membership of the transit authority resulting from expiration of office or otherwise, shall be filled by appointment by the metropolitan mayor. Any successor member shall have the same qualified voter status as his predecessor.

(d) Three (3) members of said transit authority shall constitute a quorum for the transaction of business. The affirmative vote of a majority of a quorum shall be necessary to take any action or to adopt any motion.

(e) The first meeting of said transit authority shall be held on or before May 25, 1953, at a time and place designated by the Mayor of the City of Nashville, on notice of such meeting given to the members of Nashville Transit Authority and to the present secretary of Nashville Public Utilities Commission. At such meeting, or at an adjourned meeting, said transit authority shall organize by selecting one (1) of its members as chairman and another as vice-chairman, who shall serve as such until May 1, 1954, at which time and annually thereafter the authority shall elect or re-elect its chairman and vice-chairman. At such meeting, or at an adjourned meeting, said transit authority shall appoint a secretary, who need not be a member thereof.

(f) The secretary shall be a licensed and practicing attorney at the Nashville Bar of not less than five (5) years' experience, and not less than thirty (30) years of age. The secretary shall devote such time as may be necessary to its duties, but he may engage in the practice of his profession so long as such practice does not interfere with the performance of his duties as secretary of the transit authority. The secretary shall not appear as counsel in any cause or matter pending before any court or administrative agency wherein any street railway company subject to the jurisdiction of the transit authority is a party, nor shall the secretary accept employment, directly or indirectly, from any street railway company which is subject to the jurisdiction and control of the transit authority. The secretary shall keep himself advised of all matters and questions pending before the transit authority, and shall furnish any information required when requested to do so by members of the transit authority. The duties of the secretary shall be fixed by the transit authority; provided, however, that any such secretary having acquired a civil service status with the City of Nashville shall keep and maintain such status, with all the rights, benefits and obligations incident thereto.

(g) Metropolitan transit authority shall hold public meetings once each month, at a place, and on a day, and at an hour to be determined by its members, with suitable prior public announcement or notice thereof. Upon request of the transit authority, the metropolitan mayor shall make available to the transit authority a meeting place in a metropolitan building at a convenient location, where such meetings may be held, and where any hearings conducted in connection with the exercise of its duties and fulfillment of its obligations by the transit authority likewise may be held and conducted. The transit authority shall hold such additional meetings as its business may require.

2. (a) The following terms, wherever used or referred to in this Act, shall have the following respective meanings unless a different meaning clearly appears from the context:

1. "Metropolitan transit authority" or "transit authority" or "authority" shall mean the municipal regulatory agency established under the terms and provisions of chapter 487, Private Acts of 1953, amending chapter 246, Private Acts of 1947, the same being the Charter of the City of Nashville, in compliance with chapter 58, Public Acts of 1953.

2. "Metropolitan council" shall mean the governing body of the metropolitan government as presently or at any time hereafter constituted.

3. "Metropolitan government" shall mean the Metropolitan Government of Nashville and Davidson County.

4. "Metropolitan treasurer" shall mean the treasurer of the metropolitan government, or the person holding the successor office in the metropolitan government charged with the supervision of and responsibility for the receipt, custody and disbursement of all funds belonging to the metropolitan government and all funds collected by city officials as agents or trustees.

5. "Public transportation facilities," "public transportation properties," or "public transit facilities" shall include all the real and personal property, buildings and improvements, street railway cars, self-propelled motor coaches, trolley coaches, mass transportation vehicles for the transportation of passengers, accessory vehicles, materials, tools, supplies, equipment, and other real and personal property necessary, useful and suitable in the operation of a public transit system.

6. "Garage facilities" shall include the buildings and improvements, and all other real property at any time leased, owned, acquired or erected for office, garage, maintenance, service, storage and terminal facilities, and necessary, useful and suitable for a public transit system.

7. "Transit facilities" shall include street railway cars, self-propelled motor coaches, trolley coaches and other mass transportation vehicles for the transportation of passengers, accessory vehicles, material, tools, supplies and equipment, and other personal property at any time leased, owned or acquired and necessary, useful and suitable in the operation of a public transit system.

8. "Public transit system" shall include public transportation facilities as herein defined, together with all contractual rights, franchises, certificates of convenience and necessity, operating permits, and operating rights over streets and highways.

9. "Bonds" shall mean any bonds, interim certificates, notes, debentures or other obligations of the transit authority issued pursuant to this Act.

10. "Bond resolution" shall mean any resolution authorizing, ratifying or affecting any bonds, interim certificates, notes, debentures, or other obligations of the transit authority issued pursuant to this Act.

11. "Mortgage" shall include all deeds of trust, mortgages or other instruments conveying real or personal property as security for bonds, and conferring right to foreclose and cause a sale thereof according to the terms of any such instrument.

12. "Trust indenture" shall include instruments pledging: (i.) revenues of real or personal properties, but not conveying such properties or conferring the right to foreclose and cause a sale thereof; (ii.) revenues from the operation of a public transit system or any part, parcel or piece thereof; and (iii.) revenues of the "authority" from any source which may be described in such instruments.

13. "Street railway companies" shall mean companies operating street railway cars, gasoline or electric or other self-propelled coaches for transportation of passengers within the jurisdictional limits of metropolitan transit authority, which is within the general services district of the metropolitan government.

14. "Public transit company" or "transit company" shall mean a company operating a public transit system within the jurisdictional limits of the transit authority, and the terms are synonymous with the words "street railway company" as above defined.

(b) The metropolitan transit authority is hereby vested with, and shall exercise the general supervision and regulation, jurisdiction and control over street railway companies, their property, property rights, facilities and franchises as were vested in the City of Nashville under section 5447.1, Supplement to the Code of Tennessee, 1950, and any amendatory Acts thereto, and as have been vested in the metropolitan government by the other terms and provisions of this Charter of the metropolitan government, or by any other Public Act or Private Act of the General Assembly of Tennessee. Metropolitan transit authority shall have the same powers with respect to street railway companies operating within the jurisdictional limits above defined, as heretofore granted to the City of Nashville, to the governing body thereof, to the metropolitan government, to the governing body thereof, or to the railroad and public utilities commission; provided, however, that nothing herein shall be construed to change the method of assessing the properties of street railway companies for ad valorem taxes by the railroad and public utilities commission, and such assessments and the method of taxation of said companies, shall remain as now provided by law; provided further that any property of the metropolitan government or of metropolitan transit authority leased to or used by a street railway company shall not be subject to assessment by the railroad and public utilities commission.

(c) The entire and complete supervision, regulation, jurisdiction and control over street railway companies operating within the metropolitan government area, shall be vested solely in and exercised solely by the transit authority. With reference to public transit systems, all power and authority heretofore delegated to or vested in the City of Nashville or the metropolitan government and all duties placed upon the metropolitan government, either by its Charter, or by Private Act or by general law, are hereby transferred to and vested in the transit authority. Neither the metropolitan mayor, the metropol-

itan council, nor any other officer or agency of the metropolitan government shall have or exercise any authority whatsoever over such street railway companies or over the transit authority, except as expressly provided in this article 64. Whenever any action of the metropolitan mayor and metropolitan council or thing affecting the ownership, operation, contracts, notes, stocks, debentures, financing, transfer, assignment, rental or sale of any street railway company, its property, property rights, franchises, permits or certificates, or any amendment thereto shall have been required heretofore by resolution or ordinance, same shall be acted upon and effective hereinafter by order of metropolitan transit authority; provided, however, that no franchise to operate a street railway company upon the streets of the metropolitan government area shall be granted except upon referendum, as set forth under other provisions of this Charter; and provided further, that nothing herein shall be construed as depriving the citizens of the metropolitan government area of the right to grant franchises by referendum through the procedure now established by law.

(d) The metropolitan attorney shall furnish legal advice, representation and services to the transit authority in connection with its work, and when requested to do so by said transit authority. Whenever in the judgment of the transit authority the public interest so requires, special counsel, auditors or transit experts shall be employed and paid such compensation for their services as the transit authority shall determine to be reasonable compensation for services rendered, the same to be paid, however, out of the funds available for defraying the expenses of the transit authority.

(e) Every street railway company, the supervision and regulation, jurisdiction and control over which is vested in the transit authority, shall pay an inspection fee to the transit authority, the same to be used by the transit authority in defraying its necessary expenses. The payment of such inspection fee shall be in lieu of any inspection fee heretofore levied, paid or payable, by such street railway company to the State of Tennessee, the railroad & public utilities commission, the metropolitan government, or for the benefit of the Metropolitan government. The annual inspection fee payable under this article 64 shall be at the rate fixed by order of metropolitan transit authority, not to exceed $2.50 per seat, per vehicle, used in the transportation of passengers by such street railway company. The annual inspection fee shall be paid in semiannual installments in the months of June and December of each year for the current year, beginning in June, 1953. All funds now in the public transportation fund of the City of Nashville are hereby transferred and set over to the account of metropolitan transit authority of the purpose of payment of expenses of such authority as herein provided.

3. (a) Members of the transit authority shall serve without compensation, but may have refunded to them the necessary and essential expenses incurred by them in carrying out their duties.

(b) In the exercise of its duties of supervision and regulation, jurisdiction and control over street railway companies, the transit authority is authorized to employ appropriate personnel, and to designate the duties and salaries of such personnel, and to incur any and all other necessary expenses incident to the exercise of the duties of the transit authority. The individuals employed by Nashville Transit Authority at the effective date of this Charter as secretary to Nashville Transit Authority and as bus inspectors for Nashville Transit Authority shall become employees of metropolitan transit authority and shall continue to perform the duties heretofore performed by them at their respective salaries until their duties and compensation are otherwise fixed and determined by metropolitan transit authority.

(c) The secretary of Nashville Transit Authority and the bus inspectors for Nashville Transit Authority under the preceding paragraph, presently having a civil service and retirement status as employees of the transit authority shall keep and maintain such civil service and retirement status and shall be entitled to all the rights, privileges, obligations and benefits thereof. Regular employees of metropolitan transit authority hereafter employed, either to replace such secretary or such bus inspectors or as additional employees shall be entitled to the same pension, retirement, disability and death benefits under the same conditions as other persons employed by metropolitan government after the effective date of this Charter; provided, however, that such future regular employees of metropolitan transit authority shall be excluded from the provisions of article 12 of this Charter, establishing the system of personnel administration.

4. (a) Metropolitan transit authority is authorized and empowered to make all reasonable rules and regulations appropriate to the exercise of its jurisdiction and powers and to its functioning as an effective administrative or regulatory agency. The rules and regulations of Nashville Transit Authority shall constitute the rules and regulations of metropolitan transit authority until the transit authority adopts and promulgates its rules and regulations.

(b) The transit authority may designate its secretary as an examiner, or any other person possessing the qualifications herein fixed for the secretary as an examiner, and by its rules and regulating may delegate to such an examiner the power to receive petitions and com-

plaints, to investigate the same, to conduct hearings, and to receive evidence orally, by deposition, or by stipulation, and to make findings and recommendations. All findings or recommendations of such examiner shall be subject to the right of any interested party to except thereto, and to be hear by the members of the transit authority upon the record, and upon such exceptions, any interested party so requesting in writing shall have the right to a hearing de novo before the transit authority. No recommendations of such examiner shall constitute final action until approved and adopted by order of the transit authority subsequent to the receipt of a report from said examiner.

(c) Upon any investigation or hearing involving the fixing of rates to be charged by a street railway company, metropolitan transit authority shall give full and due consideration to all factors pertinent thereto in arriving at fair and reasonable rates and to various methods of rate determination, including the theory of operating ratio after taxes, to the end that the company shall be permitted to have and to receive from efficient operation a fair and reasonable net profit or return.

(d) No final order shall be entered by the transit authority in any manner affecting any street railway company operating under its jurisdiction until after reasonable notice and full hearing, at which all interested parties shall be afforded the opportunity of being represented by counsel.

(e) Any interested party shall be given the opportunity to intervene, and to present evidence, and to be heard at any such hearing. Any party desiring to have a written record made may employ the services of a court reporter at the expense of that party. Any party desiring a transcript of such record shall pay the costs thereof at the record shall pay the costs thereof at the regular established rate for the transcription of stenographic records of proceedings in the circuit and chancery courts of Davidson County.

(f) The power to issue subpoenas for the personal appearance and testimony of witnesses, and subpoenas duces tecum for the production of documents in connection with the taking of evidence is vested in metropolitan transit authority, such subpoenas to be issued over the signature of the chairman or vice-chairman upon application to the secretary. Upon failure of any person to appear in response to such subpoenas, or to produce documents as therein required, metropolitan transit authority, through its secretary and chairman, or vice-chairman, may apply to any circuit or chancery court of Davidson County, Tennessee, by petition, for the enforcement of its subpoena. Upon order being entered by the court to which such application is made directing the appearance of the witness, or the production of the documents in response to the subpoena, the failure to comply with the order of the court shall be punishable by the court as in cases of contempt.

(g) Any final order of the metropolitan transit authority shall be subject to review under sections 27-9-101 to 27-9-114, inclusive, of the Code of Tennessee.

5. (a) For the purpose of securing, maintaining, and facilitating efficient and economical public transportation in the metropolitan government area within the regulatory jurisdiction of metropolitan transit authority, the authority shall have and exercise all of the powers heretofore conferred upon it and likewise shall have and exercise all of the powers conferred by this Act, except the power to issue bonds. With reference to the issuance of any bonds within the limitations hereinafter provided, the authority shall determine the necessity for the issuance of such bonds which shall be revenue bonds, shall evidence such determination by resolution, and upon the submission of any such resolution of the authority to the metropolitan council it shall be the duty of the metropolitan mayor of the metropolitan government and the metropolitan council to provide by resolution for the issuance of such revenue bonds as directed by the authority. Such resolution of the metropolitan council may be adopted at the same meeting at which it is introduced, as any other resolution of the council is adopted, and shall take effect immediately, and need not be published or posted.

(b) All properties, rights and things acquired by or for the authority under the provisions of this Act shall be acquired, held, owned, transferred and conveyed in the name of the metropolitan government. Such properties and rights are hereinafter sometimes referred to as property of the authority, owned by the authority or in which the authority has a transferrable interest. All agreements, contracts, transfers, and conveyances in connection therewith shall be made and executed by the authority in the name of the metropolitan government, and all such contracts, agreements, transfers and conveyances shall be signed by the chairman or vice-chairman of the authority and attested by the secretary or assistant secretary and shall need no further approval than that of the authority. Neither the metropolitan mayor, the metropolitan council nor any other officer, department, board or commission of the metropolitan government shall have or exercise any authority whatsoever over metropolitan transit authority other than, and except to the extent expressly provided herein.

6. (a) The authority, in addition to the regulatory powers heretofore vested in it, and subject to the provisions of the preceding paragraphs 5. (a) and (b), shall have and exercise the following powers and authority:

1. To make and execute contracts and other instruments necessary or convenient to the exercise of the powers of authority.

2. To make and from time to time amend and repeal by-laws, rules and regulations not inconsistent with this Act.

3. To own in the name of the metropolitan government and to operate a public transit system.

4. To acquire by gift, lease, purchase or otherwise and to own public transportation facilities in the name of the metropolitan government.

5. To own, acquire by gift, lease, purchase or otherwise in the name of the metropolitan government, and to replace, construct, reconstruct, improve, alter or repair garage facilities.

6. To own, acquire by gift, lease, purchase or otherwise in the name of the metropolitan government, and to replace, improve, alter, or repair transit facilities.

7. To lease, sell or convey to public transit companies for public transit purposes all or any part of the public transit system, public transit facilities, garage facilities, or transit facilities owned by the authority in the name of the metropolitan government, or in which the authority has a leasehold interest, equity or other possessory right which it may transfer or assign.

8. To enter into operating contracts and agreements with public transit companies for the use and operation of public transportation facilities, garage facilities, or transit facilities, owned by the authority in the name of the metropolitan government, by such companies in furnishing public transportation.

9. To lease, sell, transfer and convey, or otherwise dispose of public transportation properties, garage facilities, or transit facilities owned by the authority in the name of the metropolitan government, or any part, parcel, or piece thereof, when the same no longer is used or useful for public transportation purposes.

10. To insure and provide for the insurance of property or operations of the authority against such risks as the authority may deem advisable and to require parties, with whom the authority contracts, to do so.

11. To borrow money upon bonds, notes, debentures or other evidences of indebtedness issued as herein provided in the form of either long term or short term debt and to secure the same by pledges of revenues of the authority from any source in whole or in part, and by vendor's liens, mortgages, deeds of trust, chattel mortgages, conditional sales contracts, or equipment trust obligations, upon property held or to be held by the authority in the name of the metropolitan government, and in any other manner.

12. To pledge rentals received by virtue of any lease with any public transit company as security for the payment of bonds issued under this Act.

13. To contract with public transit companies operating within the metropolitan government area and under the jurisdiction of metropolitan transit authority, for the payment of a percentage of the gross receipts of such public transit companies in lieu of the payment of a percentage of the gross receipts to the metropolitan government provided for by general law.

14. To expressly pledge such percentage of gross receipts so contracted to be paid in lieu of the payment of the tax levied by general law, as security for the payment of any bonds issued under this Act and if not so pledged to use the same for the general purposes set out in the following paragraph, or to relieve public transit companies of such gross receipts payments.

15. To enter into an agreement with any public transit company operating under its jurisdiction, placing a limitation upon earnings of such company, providing for the deposit and holding of any amounts in excess of such limited earnings, establishing fare regulator funds in connection therewith, securing minimum earnings to any such public transit company, and providing for the use and disposition of excess amounts for reductions of transit fares collected by such public transit company, or for retirement of debt created under this Act upon any property owned by the authority in the name of the metropolitan government and used by such public transit company by contract with the authority.

16. To agree to limitations upon the right of the authority to dispose of any public transportation facilities, garage facilities, transit facilities, or any part, piece, or parcel thereof in connection with any loan.

17. To require investment of any funds held to the credit of the authority, in reserve, sinking funds, or any funds not required for immediate disbursement, in property or securities in which savings banks may legally invest funds subject to their control.

18. To exercise the power of eminent domain in the name of the metropolitan government in order to acquire garage facilities, acting in accordance with the provisions of sections 29-16-101 et seq., of the Code of Tennessee, and any amendments thereto, or pursuant to any other applicable statutory provisions now in force or hereafter enacted for the exercise of the power of eminent domain.

19. To execute and deliver in the name of the metropolitan government leases, deeds, mortgages, deeds of trust, chattel mortgages, conditional sales agreements, or equipment trust notes or other instruments evidencing liens upon public transportation properties, garage facilities, transit facilities, or parts, pieces or parcels thereof, acquired by the authority and securing the payment of the purchase price, but not to pledge the credit of the metropolitan government.

20. To accept from others in connection with transfers or conveyances by the authority or contractual agreements between the authority and others, leases, bills of sale, deeds, mortgages, deeds of trust, chattel mortgages, conditional sales agreements, equipment trust notes, or other instruments evidencing liens upon property transferred by the authority and securing the purchase price thereof.

21. To receive from the metropolitan government or any agency thereof any funds paid by said metropolitan government or any agency thereof for the use of the transit authority in carrying out the purposes of the authority.

22. To do all things necessary and convenient to carry out the purposes of this Act.

(b) The maximum effective period for any contract or agreement between the authority and any public transit company hereafter entered into shall be thirty (30) years from and after the date of such agreement, or the expiration date of the franchise of such transit company, whichever period is lesser. In the case of a public transit company holding an indefinite or perpetual franchise, that is, with no limitation date fixed, the limitation of thirty (30) years shall be applicable. In the absence of any effective period fixed in any such agreement, the maximum period herein provided shall be applicable. From time to time any such agreement may be amended or altered by further agreement between the authority and such company. Any agreement heretofore entered into between the authority and any public transit company operating under its jurisdiction and in effect at the date of this enactment, which would have a valid and binding agreement under this Act, shall be valid and binding as though this Act had been in effect at the time such agreement was made; provided, that the limitation of years as herein fixed shall not become operative as to agreements heretofore made except upon agreement between the authority and any such public transit company.

(c) The provisions of any agreement or contract entered into between the authority and a public transit company as herein provided, or any amendment thereof, and the provisions of any lease, sale, or operating agreement negotiated or entered into as herein authorized, shall not be considered as a purchase by the metropolitan government of a public utility or the sale, lease or disposal of a public utility belonging to the metropolitan government, under the provisions of article 13, subparagraph 36 of this Charter, nor shall the provisions of any such contract, lease, sale, or operating agreement be considered as a public utility franchise or as a renewal, extension or amendment thereof; nor shall the same be considered as an acquisition by condemnation, or otherwise, of property of a public utility. No ordinance nor resolution of the metropolitan council, and no referendum shall be required under the provisions of this Charter or under the provisions of the laws of the State of Tennessee to make any such contract, lease, sale or operating agreement valid, effective and binding, but the same shall be valid, effective and binding upon agreement between the authority and the public transit company without further approval.

(d) The metropolitan government in no wise shall be responsible for the performance of any agreement by the authority or for the payment of any amounts agreed to be paid by the authority in the exercise of any of the powers herein given the authority. Persons, firms or corporations contracting with the authority in the name of the metropolitan government shall be deemed to have acted with full knowledge of this and all other terms of this Act.

(e) Funds, fees, charges, rentals and revenues received by the authority shall be paid to and received by the metropolitan treasurer of the metropolitan government and kept by him to the credit of the authority in separate accounts, wherever separate accounts are required. Funds which are pledged to secure the payment of any obligation, indebtedness, or evidence of indebtedness of the authority, will not be commingled with any other fund of the authority, except by agreement with the holders of such obligations or evidences of indebtedness. The authority and/or the metropolitan government in any mortgages, trust indentures, or agreements with bondholders may provide that certain funds or revenues or payments from specific sources shall be kept in separate accounts and any such agreement shall be complied with by the metropolitan treasurer in keeping the accounts of metropolitan transit authority. No withdrawals from any account or accounts and no payments from such funds shall be made except upon order of the authority. The authority from time to time through its chairman or secretary shall order payments made from such account or accounts and payments shall be made upon such orders in writing signed by the chairman or by the secretary, so long as there is a balance to the credit of said account or accounts.

(f) The metropolitan treasurer shall keep accurate records and books dealing with the separate accounts of metropolitan transit authority and shall make a report to the metropolitan mayor of the metropolitan government and to the chairman of the authority on or before the first day of July each year showing in detail the amounts received and from what sources, and the expenditures made and how expended. Such books and records shall be open to inspection and examination by accountants or auditors of the metropolitan government as all books and records of the metropolitan treasurer are inspected. The

secretary of metropolitan transit authority shall likewise keep accurate records and books showing all orders upon the metropolitan treasurer for expenditures of funds from accounts of the authority, to whom such funds are payable, and the purposes for which expenditures are made. The books and records of the secretary of the authority likewise shall be open to inspection and examination by the accountants or auditors of the metropolitan government.

(g) Metropolitan transit authority shall have no power or authority to levy or collect any special tax, fee or charge upon a public transit company operating under its jurisdiction, except such taxes, fees or charges as are now in effect and are payable to the authority and as provided in this Charter, provided, however, that the authority and any public transit company operating under its jurisdiction may enter into any agreement, the making of which is authorized under this Act.

(h) In any lease agreement entered into between the authority and a public transit company there may be included in addition to the usual and necessary provisions of an agreement of such nature the following special requirements:

(1) The lessee shall confine its transit operations to the geographical area within the regulatory jurisdiction of the authority. The same ownership in the form of a holding company, or other business form or entity may own and operate a transit system in the metropolitan government area, along with other transit systems, but the operations of the lessee under the jurisdiction of the authority shall be an entirely separate business entity. All necessary consents shall be given by the authority to the transfer of transit franchises and properties to new companies or corporations, if such transfer becomes desirable, necessary or proper to meet this requirement. The authority by resolution may waive the requirements of this paragraph with reference to the geographical limitations upon operations and the separability of a lessee transit company as a business entity.

(2) The authority, as a condition of the lease agreement, may require the lessee to pay rentals in advance not to exceed a sum equal to the rental for one period of twelve months. The payment of this amount, however, shall not excuse the lessee from paying current rentals, but the advance rental deposit shall be applied to the payment of the rentals for the period covered during the last months of the lease.

(3) The lessee may be required to agree to repair and maintain the leased premises at lessee's expense and to cause to be issued policies of insurance with fire and extended coverage protection for the authority and/or the metropolitan government in an amount equal to the insurable value of such facilities, or such lesser amount as shall be agreeable to the authority, the expense of such repairs, maintenance and insurance to constitute a part of the operating expenses of the lessee.

7. (a) Where public transit companies operate under the jurisdiction and regulation of the authority, the authority shall adjust transit fares for such companies, as, if and when required, to the end that at all times the revenues of such companies from their operations under the regulation and jurisdiction of the authority shall be adequate to meet all reasonable operating expenses, including any moneys payable to the authority, depreciation, and taxes, including federal income tax; to provide sufficient revenues to meet any commitments under any contract entered into between the authority and such public transit company for the payment of moneys; to provide sufficient revenues for the payment of funds required to meet the obligations of any bonds and interest thereon issued or incurred under this Act in providing garage facilities or transit facilities which may be used by any such public transit company; and to permit such public transit company, after meeting all the foregoing requirements or any additional requirements hereafter fixed upon its revenues, to receive from efficient operation a fair and reasonable net profit. If there shall be a delay in any fare adjustment by the authority, then such adjustment when made shall also take into consideration the extent to which the public transit company affected has failed to receive a fair and reasonable profit during any preceding period, provided that no period of time preceding the date of this enactment shall be included in any such preceding period. The soundness and security of the investment of any bonds issued under this Act, the efficiency and adequacy of the public service rendered by the public transit company, and the continued solvency and reasonably profitable operation of the public transit company, shall be assured and confirmed.

(b) In fixing rates of fare, and determining proper return therefrom to public transit companies, the authority may establish the fair and reasonable operating ratio for public transit companies, that is, the fair and reasonable relationship between the expenses (including all operating expenses, moneys payable to the authority, depreciation and taxes including federal income tax) and gross revenues. Standards of proper, efficient and adequate service likewise shall be established, and managerial duty to maintain, and managerial discretion in maintaining the same by public transit companies shall be recognized and assumed.

(c) The authority shall not use or exercise its power to engage in the operation of a public transit system so as to engage in competitive operation with any public transit company which is operating a public transit system under the jurisdiction and regulation of the authority. The

authority by and with the consent of any public transit company operating within the jurisdictional limits of the authority may acquire, own and operate the public transportation properties of any such public transit company. The authority may use and dispose of such properties within the powers granted to authority under this Act. Nothing herein contained, however, shall be construed to restrict or limit in any manner the exercise of the regulatory jurisdiction of the authority so as to require any public transit company operating within its jurisdictional limits to furnish safe, adequate and proper service, nor shall the provisions of this paragraph restrict or limit the right of the metropolitan government to institute proceedings to forfeit franchises for misuser or nonuser thereof in proper cases.

(d) If the authority shall become the operator of a public transit system it shall manage and operate such system in an efficient manner so as to enable it to fix rates of fare for passengers upon such transit system at reasonable rates consistent with providing safe, adequate and proper service, and the authority shall not operate any such public transit system for a profit or as a source of revenue to the metropolitan government. To this end if the authority shall own and operate a public transit system it shall fix rates of fare at no higher rates than shall be found to be necessary in order to produce revenues which (together with all other available moneys, revenues, income and receipts of the authority from whatever source derived) will be sufficient to pay as the same become due the principal and interest on the bonds issued under this Act; to meet the cost of and provide for maintaining and operating the public transit system, depreciation on the public transportation properties, and the administrative expenses of the authority; and to create adequate and proper reserves to meet principal and interest payments on such bonds.

8. (a) Revenue bonds may be issued under this Act to provide for the construction, acquisition, repair, improvement, replacement, or extension of public transportation facilities, garage facilities, or transit facilities, or for the refunding of any bonds theretofore issued for such purpose. Such bonds may be secured by pledge of the income or revenues of the authority from any source whatsoever but the resolution adopted by the authority and the resolution of the metropolitan council shall describe the source or sources of revenue which are pledged to secure any particular bond issue. Any such bonds may be secured additionally by vendor's lien, mortgage, deed of trust, or chattel mortgage. No person executing the bonds shall be liable personally on the bonds by reason of the issuance thereof.

(b) Bonds issued under the authority of this Act shall be payable out of revenues of funds of the authority. The bonds shall not constitute an indebtedness of the metropolitan government within the meaning of any constitutional, statutory or charter limitation or restriction. Bonds may be issued under this Act notwithstanding any debt limitation prescribed by any statute or the terms of the Charter of the metropolitan government. Nothing herein contained, however, shall prevent or interfere in any manner with the issuance of general obligation or revenue bonds of the metropolitan government under other authorization, for the purpose of making funds available to metropolitan transit authority in furtherance of the general purposes of this Act.

The bonds herein provided for shall be issued in one or more series and shall bear such dates or mature at such dates or times, not exceeding thirty (30) years from their respective issue dates, bear interest at such rate or rates, not exceeding interest at six (6%) per annum, payable semiannually, be in such denomination (which may be interchangeable), be in such form, either coupon or registered, carry such registration privilege, be executed in such manner, be payable in such medium of payment at such place or places, and be subject to such terms of redemption (with or without premium) as the bond resolution or the trust indenture or mortgage may provide.

(c) After the sale of any revenue bonds pursuant to this article, the metropolitan government shall have power to authorize the execution and issuance to the purchasers, pending the preparation of the definitive bonds, of interim certificates therefor or of temporary bonds or other temporary instruments exchangeable for the definitive bonds when prepared, executed and ready for delivery. The holders of such interim certificates, temporary bonds or other temporary instruments shall have all rights and remedies which they would have as holders of the definitive bonds.

9. The metropolitan government shall cause to be published in a newspaper published in the metropolitan government area a notice stating the date of adoption of such bond resolution, the amount and maturities of the bonds authorized to be issued, and also stating that any action or proceeding of any kind or nature in any court questioning the validity of the creation and establishment of the transit authority, or the validity or proper authorization of bonds provided for by the bond resolution, or the validity of any covenants, agreements or contracts, provided for by the bond resolution shall be commenced within twenty (20) days after the first publication of such notice. If no such action or proceedings shall be commenced or instituted within twenty (20) days after the first publication of such notice, then all residents and taxpayers and owners of property in the metropolitan government area and all other persons whatsoever shall be forever barred and foreclosed from instituting or

commencing any action or proceeding in any court, or from pleading any defense to any action or proceeding, questioning the validity of the creation and establishment of the transit authority, the validity or proper authorization of such bonds, or the validity of any such covenants, agreements and contracts, and said bonds, covenants, agreements and contracts shall be conclusively deemed to be valid and binding obligations in accordance with their terms and tenor.

10. Any provision of any law to the contrary notwithstanding, any bond or other obligations issued pursuant to this article shall be fully negotiable within the meaning and for all purposes of the law merchant and negotiable instruments law of the State of Tennessee, and each holder or owner of such a bond or other obligation, or of any coupon appurtenant thereto, by accepting such bond or coupon shall be conclusively deemed to have agreed that such bond, obligation or coupon is and shall be fully negotiable within the meaning and for all purposes of said law merchant and negotiable instruments law of the State of Tennessee.

11. Any bond resolution providing for or authorizing the issuance of any bond may contain provisions, and the metropolitan government and/or transit authority, in order to secure the payments of such bonds and in addition to other powers, shall have power by provision in the bond resolution to covenant and agree with the several holders of such bonds as to:

(a) The custody, security, use, expenditures or application of the proceeds of the bonds.

(b) The acquisition, construction, and completion or replacement of all or any part of the public transit facilities.

(c) The use, regulation, operation, maintenance, issuance or disposition of all or any part of the public transit facilities, or restrictions on the exercises of the powers of the metropolitan transit authority to dispose, or to limit or regulate the use, of all or any part of said facilities.

(d) Payment of the principal of or interest on the bonds, or any other obligations, and the sources and methods thereof, the rank or priority of any such bonds or obligations as to any lien or security or the acceleration of the maturity of any such bonds or obligations.

(e) The use, and disposition of any moneys of the metropolitan transit authority, including revenues or rental derived or to be derived from the operation of said public transit facilities.

(f) Pledging, setting aside, depositing, or trusteeing all or any part of: (i.), the percentage of the gross receipts of any public transit company paid to the authority in lieu of the payment of the percentage of the gross receipts provided for under general law; (ii.), the rentals received by the authority; and (iii.), other revenues or moneys of the authority, to secure the payment of the principal of or interest on bonds issued under this Act, or the payment of expenses of operation or maintenance of the public transit facilities, and defining and describing the powers and duties of any trustee with regard thereto.

(g) Setting aside out of the percentage of the gross receipts paid in lieu of the percentage of the gross receipts provided under general law, rentals and other revenues and moneys of the authority as reserves and sinking funds, and designating the source, custody, security, regulation, application and disposition thereof.

(h) Limitations on the issuance of additional bonds or any other obligations or on the incurrence of indebtedness for the purposes provided in this article.

(i) Vesting in a trustee or trustees such property rights, powers and duties in trust, as may be deemed necessary or desirable.

(j) Payment of costs or expenses incident to the enforcement of the bonds or of the provisions of the bond resolution or of any covenant or contract with the holders of the bonds.

(k) The procedure, if any, by which the terms of any covenant of contract with, or duty to, the holders of bonds may be amended or abrogated, the amount of bonds the holders of which must consent thereto, and the manner in which such consent may be given or evidenced.

(l) Any other manner or course of conduct which, by recital in the bond resolution, is declared to further secure the payment of the principal of or interest on the bonds.

12. All such provisions of the bond resolution and all such covenants and agreements shall constitute valid and legally binding contracts between the metropolitan government and the transit authority and the several holders of the bonds regardless of the time of issuance of such bonds, and shall be enforceable by any such holder or holders by mandamus or other appropriate action, suit or proceeding at law or in equity in any court of competent jurisdiction.

13. (a) In the event that there shall be a default in the payment of principal or of interest on any bonds after the same shall become due, whether at maturity or upon call for redemption, and such default shall continue for a period of thirty (30) days, or in the event that the metropolitan government or the transit authority shall fail or refuse to comply with the provisions of this Act or shall fail or refuse to carry out and perform the terms of any contract with the holders of any such bonds, and such failure or refusal shall continue for a period of thirty (30) days after written notice to the metropolitan government or the transit authority of its existence and nature, the holders of twenty-five (25%) per centum in aggregate

principal amount of the bonds then outstanding by instruments filed in the office of the metropolitan clerk and proved or acknowledged in the same manner as a deed to be recorded, may appoint a trustee to represent the holders of the bonds of such series for the purposes provided in this section, and to have the power provided in this section.

(b) Such trustee may and upon written request of the holders of twenty-five (25%) per centum in aggregate principal amount of the bonds of such series then outstanding shall in his or its own name:

(1) By mandamus, certiorari or other action, suit, writ or proceeding at law or in equity, enforce all rights of the holders of such bonds, including the right to require the transit authority to charge and collect rental adequate to carry out any contract as to, or pledge of, revenue, and to require the metropolitan government or the transit authority to carry out and perform the terms of any contract with holders of such bonds or its duties under this Act.

(2) Bring action or suit upon all or any part of such bonds or interest coupons or claims appurtenant thereto.

(3) By action or suit in equity require the metropolitan government or the transit authority to account as if it were the trustee of an express trust for the holders of such bonds.

(4) By action or suit in equity enjoin any acts or things which may be unlawful or in violation of the rights of the holders of such bonds.

(5) Declare all such bonds due and payable whether or not in advance of maturity, upon thirty (30) days' prior notice in writing to the metropolitan government or the transit authority, and if all defaults shall be made good, then with the consent of the holders of twenty-five (25%) per centum of the principal amount of such bonds then outstanding, annul such declaration and its consequences.

(c) Such trustee shall, in addition to the foregoing, have and possess all of the powers necessary or appropriate for the exercise of the functions specifically set forth herein or incident to the general representation of the holders of bonds of such series in the enforcement and protection of their rights.

(d) In any suit, action or proceeding by such trustee, the fees, counsel fees and expenses of the trustee and of the receiver, if any, appointed pursuant to this Act, shall constitute taxable costs and disbursements, and all costs and disbursements, allowed by the court, shall be a first charge upon any rental and revenues of the transit authority pledge for the payment or security of such bonds.

(e) Such trustee, upon such default referred to in this section, whether or not all of the bonds of such series shall have been declared due and payable, shall be entitled as of right to the appointment of a receiver of the transit authority's public transit facilities, and such receiver may enter upon and take possession of said facilities and, subject to any pledge or contract with the holders of such bonds, shall take possession of all moneys and all property derived from or applicable to the acquisition, construction, operation, maintenance or reconstruction of said facilities and proceed to operate the same or collect rental therefor.

14. (a) The public transit facilities and other property of metropolitan transit authority are hereby declared to be public property or a political subdivision of the state devoted to an essential public and governmental function and purpose and shall be exempt from all taxation by the state or any subdivision thereof, T.C.A. § 67-5-203 et seq. All bonds issued pursuant to this article are hereby declared to be issued by a political subdivision of this state and for an essential public and governmental purpose, and such bonds, and the interest thereon and the income therefrom and all service charges, funds, revenues and other moneys pledged or available to pay or secure the payment of such bonds, or interest thereon, shall at all times be exempt from taxations by the state or any subdivision thereof, except for transfer, inheritance and estate taxes.

(b) Bonds issued pursuant to this article shall be legal investments for banks, trustees and other fiduciaries in Tennessee and shall be eligible as security for the deposit of public funds.

15. The State of Tennessee does hereby pledge, covenant and agree with the holders of any bonds issued pursuant to this Act that the State, until such bonds together with interest on any unpaid installments of interest, and all costs and expenses in connection with any action or proceeding by or on behalf of such holders, are fully met and discharged, will not:

(i.) Limit or alter the rights hereby vested in the authority to acquire, construct, maintain, reconstruct, replace, operate, lease, mortgage, transfer and convey public transportation properties, garage facilities and transit facilities.

(ii.) Limit or alter the rights hereby vested in the authority to fix, establish, charge and collect fares, rentals, revenues and moneys from the sources herein provided.

(iii.) Limit or alter the right hereby vested in the authority to contract with public transit companies for the payment of a percentage of gross receipts in lieu of the gross receipts tax levied under Item T, section 1248.3, Supplement to the Code of Tennessee [Repealed]*, and to pledge the same as security for payment of the bonds issued under this Act, any such pledge having once been made, not to be subject to impairment or change.

(iv.) Limit or alter the right of the authority to fulfill the terms of any agreement made with the holders of bonds issued under this Act.

(v.) Impair the rights and remedies of the holders of the bonds issued under this Act.

(vi.) Modify in any way the exemptions from taxation provided for in this Act.

*** Editor's note—**Repealed by Acts, 1955, ch. 255, § 1.

16. The powers conferred by this Act authorizing the acquisition, construction and operation of public transportation properties, garage facilities and transit facilities, the lease, mortgage, sale or disposition thereof, and the issuance of bonds, shall be in addition to and supplemental to any powers conferred by any other general, special or local law and the provisions of this Act shall be complete authority for the acquisition, construction, operation, lease, mortgage, sale or disposition of public transportation facilities, garage facilities, and transit facilities, and the issuance of revenue bonds without regard to or compliance with the requirements, restrictions, limitations or provisions contained in any other general, special or local law.

17. Wherever in this Act an act is required to be done or may be done by a chairman, vice-chairman, secretary or assistant secretary of metropolitan transit authority, such act effectively may be done by the person filling such position at that time. Whenever an act is required to be done by a chairman, in his absence upon resolution of the authority recognizing such absence, such act may be done by a secretary, in his absence upon resolution of the authority recognizing such absence, such act may be done by a duly designated assistant secretary.

PART II.

Related Private Laws[1]

1. For Private Act relative to Electric Power Board, see Char., appx. 3. As to Transit Authority, see Char., appx. 4.

Editor's note—Set out herein are uncodified Acts of the Tennessee General Assembly applicable to the Metropolitan Government of Nashville and Davidson County.

Article I. Farmers' Market

§ 1. Bonds—Authority to issue; limitation on amount; term; manner of sale; use of proceeds.
§ 2. Same—Approval by resolution and by voters.
§ 3. Same—Payment of principal and interest prior to first tax levy; special tax levy for payment of principal and interest.
§ 4. Same—Registration.
§ 5. Same—Name.
§ 6. Same—-Fees, etc., for handling not to be paid to county officers.
§ 7. Same—Administration and expenditure of proceeds.
§ 8. Commission—Created; membership; appointment, term, qualifications and compensation of members; quorum; officers; vacancies; rules and regulations; limitations on use of space in markets; authority of general manager.
§ 9. Same—Sale of bonds prerequisite to action by commission.
§ 10. Same—Exclusive control of farmers' market and other marketing facilities.
§ 11. Same—Employment and powers of general manager.
§ 12. Same—-Regulation of rental charges.
§ 13. Police jurisdiction over market; penalties for violations of Act, regulations, etc.
§ 14. Power of eminent domain:
§ 15. Acquisition of land, buildings, etc., generally; acceptance of state and federal aid.
§ 16. Fees, rents, etc. for facilities.
§ 17. Employment of personnel.
§ 18. Collection and disposition of fees, rents, etc.; method of making expenditures.
§ 19. Disposition of surplus funds.
§ 20. Bonds of general manger and other personnel.
§ 21. Property of commission, bonds and revenue exempt from taxation.
§ 22. Use of funds for preliminary surveys, etc.; operational reserve.
§ 23. Effective date.

Article II. Fair Commissioners

§ 1. Authority to operate divisional fair.
§ 2. Board of fair commissioners—Created; membership; term and compensation of members.
§ 3. Same—Rules and regulations; employees; restrictions on issuance of passes.
§ 4. Same—Meetings; quorum.
§ 5. Same—Annual Reports.
§ 6. Same—Bond of secretary.
§ 7. Same—Accounting system.
§ 8. Special tax levy; authority to borrow money; title to property.
§ 9. Cooperation with state division of fairs.
§ 10. Powers and duties of board generally.
§ 11. Special premiums and other promotional items.
§ 12. Effective date.

Article III. Parole Officer

§ 1. Appointment.
§ 2. Qualifications.
§ 3. Duties—Generally.
§ 4. Investigation of petitions.
§ 5. Supervision of persons paroled or released under suspended sentences.
§ 6. Compensation.
§ 7. Records, data and information on file.
§ 8. Effective date.

Article IV. Juvenile Court

§ 1. Juvenile court created.
§ 2. Definitions.
§ 3. Jurisdiction.
§ 4. Marriage of a juvenile.
§ 5. Right by habeas corpus to determine custody or guardianship of children.
§ 7. Mentally defective or mentally disordered children.
§ 8. Wilful failure to provide for wife or child.
§ 9. Appointment of judge; salary; authority.
§ 10. Clerk of court to maintain records.
§ 11. Appointment of juvenile court personnel or employees.
§ 12. Chief probation officer—Duties generally.
§ 13. Preliminary inquiry; petition.
§ 14. Copy of petition and summons served upon person(s) having custody of child.
§ 15. Summonses issued by officer of the court.
§ 16. Power and authority of court.
§ 17. Children in court custody.
§ 18. Quarters and facilities for children in court custody.
§ 19. Cases involving children.
§ 20. Transfer of care, custody and control.
§ 21. Modification of court decree.
§ 22. Children placed under guardianship governed by same religious faith.
§ 23. Examination by physician, psychiatrist or psychologist; hospital care.
§ 24. Court ordered conditions of behavior.
§ 25. Court costs or witness fees.
§ 26. Budget for operation of court.
§ 27. Official records.
§ 28. Appeal from court decree or order.
§ 29. Cooperation with court.
§ 30. Welfare of children.
§ 31. Severability.
§ 32. Effective date.

Article V. Employee Pensions and/or Retirement, Insurance Compensation and Benefits

Article 1. General Provisions

§ 1.01. Definitions.

§ 1.02. Introduction.
§ 1.03. Composition and organization of pension commission.
§ 1.04. Duties and powers of pension commission.
§ 1.05. Personal interest of members of pension commission prohibited.
§ 1.06. Payments from fund.
§ 1.07. Members' contribution account.
§ 1.08. Retirement allowance account.
§ 1.09. Employer contributions.
§ 1.10. Correction of errors.
§ 1.11. Retirement benefits exempt from taxation, execution or assignment.
§ 1.12. False statements.
§ 1.13. Headings.
§ 1.14. Construction.
§ 1.15. Legally incompetent.
§ 1.16. Amendment or repeal.
§ 1.17. Repeal of entire Act.
§ 1.18. Termination of system by default.
§ 1.19. Right of employment.
Article 2. Division A
§ 2.01. Introduction.
§ 2.02. Definitions.
§ 2.03. Eligibility and participation of a person becoming an employee after the effective date.
§ 2.04. Eligibility and participation of a member of Division B who transfers his membership to Division A.
§ 2.05. Eligibility and participation of employees on the effective date who are not members of Division B.
§ 2.06. Beneficiary designation.
§ 2.07. Termination of membership in Division A.
§ 2.08. Prior service certificates.
§ 2.09. Contributions rates of members of Division A.
§ 2.10. Application for benefits.
§ 2.11. Normal retirement—Conditions.
§ 2.12. Normal retirement benefit.
§ 2.13. Delayed retirement—Conditions.
§ 2.14. Delayed retirement benefit.
§ 2.15. Early retirement—Conditions.
§ 2.16. Early retirement benefit.
§ 2.17. Definition of disability—Requirements.
§ 2.18. Disability not in line of duty—Conditions.
§ 2.19. Disability not in line of duty—Benefit.
§ 2.20. Disability in line of duty—Conditions.
§ 2.21. Disability in line of duty—Benefit.
§ 2.22. Death benefits before retirement.
§ 2.23. Death benefits after retirement.
§ 2.24. Termination of employment before fifteen (15) years of credited service.
§ 2.25. Termination of employment after fifteen (15) years of credited service.
§ 2.26. Election of optional retirement benefits.
§ 2.27. Description of options.
§ 2.28. Coverage by Social Security Act.
Article 3. Division B
§ 3.01. Introduction.
§ 3.02. Definitions.
§ 3.03. Eligibility and participation.
§ 3.04. Transfer of membership to Division A.
§ 3.05. Termination of membership in Division B.
§ 3.06. Prior service certificates.
§ 3.07. Contribution rates of members and retired members of Division B.
§ 3.08. Application for benefits.
§ 3.09. Normal retirement—Conditions.
§ 3.10. Normal retirement benefit.
§ 3.11. Disability in line of duty—Conditions.
§ 3.12. Disability in line of duty—Benefit.
§ 3.13. Disability not in line of duty—Conditions.
§ 3.14. Disability not in line of duty—Benefit.
§ 3.15. Termination of employment.
§ 3.16. Survivor benefits—Conditions.
§ 3.17. Survivor benefits.
§ 3.18. Benefits payable to retired members and survivors prior to effective date.
Article 4. Miscellaneous Provisions
§ 4.01. Severability.
§ 4.02. Chapter 452 of the Private Acts of 1941, the Davidson County Pension Act.

Article VI. Municipal Auditorium

§ 1. Bonds—Authority to issue; limitation on amount; term; manner of sale; approval by resolution and by voters.
§ 2. Same—Use of proceeds.
§ 3. Municipal auditorium commission created.
§ 4. Authority of Act.
§ 5. Exempt from taxation.
§ 6. Effective date.

Article I. Farmers' Market

Editor's note—This article consists of chapter 400, Private Acts, 1949, as amended. The powers granted by this Act to the Farmers' Market Board are continued by section 11.702 of the Metropolitan Charter. The provisions of this Act should be read as applicable to the Metropolitan Government of Nashville and Davidson County, rather than to Davidson County. Amendments are indicated by a historical citation following each amended section. The portions of this Act relating to the issuance of bonds are applicable to any bonds issued prior to the creation of the metropolitan government and still outstanding. Any future bonds are subject to the provisions of the Metropolitan Charter. This Act is set forth herein for the principal purpose of showing the powers and duties vested in the Farmers' Market Board.

Sec. 1. Bonds—Authority to issue; limitation on amount; term; manner of sale; use of proceeds.

Davidson County, State of Tennessee, be and is hereby authorized to borrow money and issue its bonds therefor in the aggregate amount of one million dollars ($1,000,000.00), bearing interest at not more than three per centum per annum, payable semiannually, both bonds and interest to be payable at such place or places in Nashville, Tennessee, or elsewhere, as may be designated by resolution of the Quarterly County Court of Davidson

County, Tennessee, for the purpose of establishing a public market or marketing facilities for use by farmers, transient produce dealers and licensed produce dealers as herein defined for the sale and distribution of fresh fruits and vegetables and other agricultural products and paying the expenses in connection with the issuance and sale of said bonds.

Said bonds shall mature in such annual installments not more than twenty-five years from their date, and shall be in such form and amount, registered or coupon, and shall be sold in such manner and for such prices as the quarterly county court of said county may determine, but in no event shall the bonds be sold for less than par, nor shall they be sold until the issue be first advertised at least once in some newspaper of general circulation in the City of Nashville, Tennessee, and once in some financial journal in New York City, said advertisement be published at least fourteen days before the sale of said bonds. The proceeds from the sale of said bonds shall be paid to the trustee of said county to the credit of a fund to be designated as the "Davidson County Farmers' Market and Building Fund," and shall be used exclusively for the purposes above recited. (Pr. Acts 1959, ch. 3.05, § 2.)

Sec. 2. Same—Approval by resolution and by voters.

Said bonds shall not issue until and unless authorized by resolution of the county court and the proposition of the issuance of such bends shall have been approved by a majority of the qualified voters of Davidson County voting on that proposition at an election called for that purpose. At any election called for this purpose those voters desiring the issuance of said bonds shall vote in said election: "For Farmers' Market Building Bonds," and those opposing the issuance of said bonds shall vote "Against Farmers' Market Building Bonds."

Such election or elections shall be held in conformity with the laws controlling elections in said Davidson County. Should a majority of the qualified voters upon said proposition in such election or elections vote "For Farmers' Market Building Bonds," then said bonds shall be issued as herein provided in this Act. Should a majority of such voters vote "Against Farmers' Market Building Bonds," then such bonds shall not be issued unless and until they shall have been presented by the quarterly county court and approved by a majority of the legal voters as herein provided.

Sec. 3. Same—Payment of principal and interest prior to first tax levy; special tax levy for payment of principal and interest.

The principal and interest of any such bonds falling due before the proceeds of the first tax levy becomes available shall be paid from the ordinary or general funds of the county, and in each year during the life of said bonds the said Quarterly County Court of Davidson County is required mandatorily to include in the annual tax levy over and above all other taxes authorized by law a special tax levy of sufficient size on all property in Davidson County to meet the principal and interest thereof falling due in the ensuing year, and a sum sufficient to reimburse the ordinary or general fund for the payment of any such interest or principal.

Sec. 4. Same—Registration.

Said quarterly county court my in its discretion provide that the owner or holder of any such bond may register the same both as to principal and interest, or as to principal alone, in his name on the books of the county in the office of the county court clerk, or in any bank or trust company in the City of New York that may be designated for such purpose, under such regulations as said quarterly court may provide.

Sec. 5. Same—Name.

Said bond issue shall be called the "Farmers' Market Building Bonds."

Sec. 6. Same—Fees, etc., for handling not to be paid to county offices.

No fees, commissions, or charges shall be made or paid to any officer of Davidson County for receiving, disbursing or handling said bonds, or the proceeds thereof.

Sec. 7. Same—Administration and expenditure of proceeds.

The proceeds of said bonds placed to the credit of the trustee of Davidson County shall be administered and expended by the Davidson County Farmers' Market Commission for the purposes herein provided.

Sec. 8. Commission—Created; membership; appointment, term, qualifications and compensation of members; quorum; officers; vacancies; rules and regulations; limitations on use of space in markets; authority of general manager.[2]

There is hereby created the "Davidson County Farmers' Market Commission." The county judge of Davidson County shall be an ex officio member of said commission. The first commission shall be composed of five qualified and competent persons, to-wit: J. D. Peay, Henry Neuhoff, W. A. Strasser, Jack Hitt, and C. R.

Bramwell, who shall serve until the next meeting of the quarterly county court, at which time there shall be elected one commissioner for a term of one year, one commissioner for a term of two years, one commissioner for a term of three years, one commissioner for a term of four years, and one commissioner for a term of five years. As the respective terms of office of said commissioners expire, there shall be elected annually one commissioner for a term of five years.

The membership of said commission is hereby increased from five (5) members to seven (7) members. Not less than two (2) members of said commission shall be licensed wholesale fresh fruit and vegetable distributors, or shall be officers of a corporation which is so licensed. The two (2) additional members of said commission shall be elected by the Quarterly County Court of Davidson County at its July term, 1959, and shall serve for the same term as the other members of said commission.

The members of said commission shall possess the following qualifications: they shall be citizens of the United States of America, citizens of Davidson County, Tennessee, and shall be at least thirty years of age, and shall have been freeholders and taxpayers of Davidson County for at least three years.

Three commissioners shall constitute a quorum for the transaction of business; provided, however, no action shall be taken by the commission except by the concurrence of a majority of the entire commission.

The commissioners shall receive as compensation a per diem of five dollars ($5.00) per day for each meeting of the Commission, but shall be paid for not more than twelve meetings in any one year.

The commission, upon its election, shall organize by the election of a chairman, vice chairman, and a secretary from among the members of the commission by a majority vote of all the members thereof, and a new chairman and new vice chairman, and a new secretary, shall thereafter be elected in like manner by the commission each year.

All minutes of the commission shall be recorded in a well-bound book, and shall be open for inspection.

All vacancies in the commission shall be filled by the county court for the unexpired term.

The commission shall have authority to adopt rules and regulations for its government and for the management and operation of the Davidson County Public Market or marketing facilities not inconsistent with the provisions of this Act.

Said rules and regulations, upon adoption by the commission, shall be submitted to the county attorney of Davidson County for approval, as to form and legality and, upon this approval, a copy of said rules and regulations shall be filed with the county clerk of Davidson County and a copy shall be kept in a well-bound book at the office of the commission and copies shall be posted on the market premises in at least three prominent places. The commission shall have authority to revise such rules and regulations at any time and these revisions shall be approved, filed and posted in the prescribed manner.

The commissioners shall be ineligible for appointment as manager, or to hold any other position created by the commission.

No person, firm or corporation shall be permitted to use or occupy any space or facility under the jurisdiction of said commission except: (1) farmers as herein defined, (2) transient produce dealers as herein defined and (3) licensed produce dealers as herein defined.

The word "farmer," as used in this Act, is defined to be an individual or individuals who are primarily engaged in producing products of the soil, dairy farming, the production of poultry or live stock and the principal part of whose income is derived from any one or more of the foregoing operations. The burden of establishing that he is a bona fide farmer within the foregoing definition shall be upon the person seeking to use such marketing facilities as a farmer. The general manager shall have authority to determine whether or not any applicant is a bona fide farmer, subject to review by the commission.

The term "transient produce dealer," as used in this Act, shall mean every person or persons who engages in the sale or distribution of or who exposes or offers for sale, distributes or otherwise deals in any fresh fruit, vegetable or produce as a temporary business and who holds a license issued by the county court clerk of Davidson County under item 65 (b) of section 67-4203 of Tennessee Code Annotated [Repealed]* and a license as a transient and temporary merchant issued by the City of Nashville.

* **Editor's note—**The relevant Code sections are now found at T.C.A. 67-4-101 et seq.

The term "licensed produce dealer," as used in this Act, is defined to be an individual, firm or corporation duly licensed to buy, sell, store, handle or transport agricultural products in this state and who holds a license issued by the county court clerk of Davidson County, Tennessee, under item 84 or item 112 of section 67-4203 of Tennessee Code Annotated [Repealed]*, or under both of said items, if applicable, and who holds a license as a produce dealer issued by the City of Nashville, Tennessee; and who regularly pays state, county and city merchants ad valorem taxes.

* **Editor's note—**The relevant Code sections are now found at T.C.A. 67-4-101 et seq.

The said general manager shall have full authority to exercise control over the type, weight and measure, designation, labeling and quality grade of commodities brought on the market consistent with the standards of the United States Department of Agriculture, the State Department of Agriculture, the State Department of Public Health, the Davidson County Department of Public Health, and the rules of the commission. This authority of the general manager shall include the right to condemn and dispose of substandard commodities, without personal liability to him or the commission and without liability to Davidson County, Tennessee.

The commission shall be authorized and empowered to construct, expand, remodel and extend marketing facilities.

The term, "marketing facilities," as used in this Act, shall include marketing space for farmers; wholesale stores for fruit, vegetable, poultry, egg, dry grocery, and meat dealers; service stations, barber shops, restaurants, banks and space for telephone and telegraph service; and other like business enterprises deemed essential to the operation of the market by the Davidson County Farmers' Market Commission.

The quarterly county court shall be authorized to borrow money in anticipation of the revenues from the market for the purpose of constructing, expanding, remodeling and extending such market facilities.

The commission shall be authorized to execute leases of unimproved real estate under its jurisdiction to licensed produce dealers for the purpose of constructing facilities. No such lease shall be executed for a period of time less than five (5) years. Such leases may be pledged as security for loans for the construction, renovation, improvement and extension of buildings or for improvements or equipment, with the approval of the finance committee of the Quarterly County Court of Davidson County, Tennessee. (Pr. Acts 1959, ch. 305, § 3.)

2. **Editors' note—**Appointment, term of office and filling of vacancies for the Farmers' Market Board is now controlled by section 11.701 of the Metropolitan Charter.

Sec. 9. Same—Sale of bonds prerequisite to action by commission.

The "Davidson County Farmers' Market Commission" shall not have authority to incur any obligation, nor shall they receive any compensation for services rendered unless and until the bonds authorized to be issued under authority of this Act have, by resolution of the county court, been issued and submitted to a vote of the people on a referendum election called for that purpose and have been approved by the people.

Sec. 10. Same—Exclusive control of farmers' market and other marketing facilities.

The commission created by this Act shall have the sole and exclusive control of the operation and management of the farmers' market authorized herein and other marketing facilities in Davidson County and over the acquisition, construction and establishment of such farmers' market or other marketing facilities. (Pr. Acts 1959, ch. 305, § 4.)

Sec. 11. Same—Employment and powers of general manager.

The commission may employ a building manager who shall supervise the construction of the farmers' market and other marketing facilities. Upon the completion of the construction of such farmers' market and other marketing facilities, the commission is authorized to employ a general manager who shall be in charge of the management and operation of such farmers' market and marketing facilities when constructed and established under the direction and supervision of the commission as may be provided from time to time by rules and regulations.

Said general manager shall be chargeable with the enforcement and execution of all rules and regulations, programs, plans and decisions made or adopted by the commission. He shall make and keep full and complete books and records which shall at all times adequately reflect the affairs of the commission, which books shall at all times be subject to the supervision, direction and control of the commission.

Sec. 12. Same—Regulation of rental charges.

The commission shall have full power to regulate charges to be made for rental space on the market and shall prescribe the rules and regulations in connection therewith, and it shall be the duty of the general manager to carry out the policies of the commission with respect to such rentals and rental charges, including the power to negotiate contracts and licenses for the construction of marketing facilities and the occupation of space, from time to time with all tenants of the commission. (Pr. Acts 1959, ch. 305, § 5.)

Sec. 13. Police jurisdiction over market; penalties for violations of Act, regulations, etc.

The confines of said market are hereby specifically. declared to be within the police jurisdiction of the City of Nashville as well as within the jurisdiction of the sheriff of Davidson County. It shall be the duty of the police

department of the City of Nashville and the sheriff of Davidson County and his deputies to enforce the provisions of this Act and to enforce the law and preserve the peace on said premises. Any violation of this Act, including the occupation or use of space on said market without the payment of the prescribed rental or license fee, is hereby declared to be a misdemeanor, punishable by a fine of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00) or by imprisonment not to exceed ninety (90) days, or both, such fine and imprisonment within the discretion of the court. (Pr. Acts 1959, ch. 305, § 6.)

Sec. 14. Power of eminent domain.

Said commission is expressly authorized to exercise the power of eminent domain on behalf and in the name of Davidson County within the boundaries of said county, in order to acquire any property, real or personal, necessary or useful in exercising the power and authority conferred by this Act. The title to all property taken for the propose of exercising the powers conferred by this Act, whether acquired by contact or by the exercise of the power of eminent domain, shall be taken in the name of Davidson County, Tennessee, and such condemnation proceedings as may be deemed necessary or proper shall be pursuant to and in accordance with the provisions of section 29-16-101 to 29-16-124 and 29-17-401 to 29-17-404, inclusive, of the Code of Tennessee. Provided, however, that in no event shall said farmers' market commission have authority beyond the amount of the funds made available to it by the issuance and sale of the bonds authorized by the provisions of this Act; with the exception that, for the purpose of constructing, expanding, remodeling and extending such marketing facilities, the Davidson County Quarterly Court is specifically authorized to borrow money at a rate not to exceed six percent (6%) per annum in anticipation of the revenues from the market, and leases may be used as collateral for such loans as hereinabove provided. (Pr. Acts 1959, ch. 35, § 7.)

Sec. 15. Acquisition of land, buildings, etc., generally; acceptance of state and federal aid.

The County of Davidson is hereby authorized to acquire by purchase, gift, condemnation, or otherwise, and to construct, maintain, operate and use such buildings, works, lands, property and conveyance as in the judgment of the commission will provide an efficient and satisfactory farmers' market and/or marketing facilities for the inhabitants of Davidson County.

The commission is authorized to accept federal and state aid.

Sec. 16. Fees, rents, etc., for facilities.

The commission is hereby authorized to charge and collect rents, rates, fees or other charges for its services and facilities.

Such rents, rates, fees and charges being in the nature of use or service charges, shall, as nearly as the commission shall deem practicable and equitable, be uniform for the same type, class and amount of use or service of the facilities of the commission.

The commission shall prescribe and from time to time, when necessary, revise a schedule of such service charges or rentals, a copy of which shall at all times be kept on file and open to public inspection at the office of the secretary of the commission and at the office of the county court clerk of Davidson County.

Sec. 17. Employment of personnel.

The commission, in addition to its authority for the employment of a general manager for the management and operation of such marketing service, shall have the authority to employ such other necessary personnel in the operation of said marketing facilities, with the right to establish the pay scale for such employees; provided, however, that they shall confine themselves within the annual operating revenue of said marketing facilities, and provided, further, that the employees of the Davidson County Farmers' Marketing Commission shall not be subject to the provisions of the Davidson County Civil Service Act, nor of the Davidson County Pension Plan.

Sec. 18. Collection and disposition of fees, rents, etc.; method of making expenditures.

It shall be the duty of the general manager of said marketing facilities to collect, report and pay into the county trustee's office of Davidson County all monies received as rents, rates, fees and charges, monthly, and within ten days from the end of each month, said payments to be placed to the credit of a special fund to be designated "Farmers' Market Operating Fund." All expenditures of said commission authorized by this Act shall be on vouchers signed by the chairman or vice chairman of the commission and countersigned by the secretary.

Sec. 19. Disposition of surplus funds.

Any funds received from rents, rates, fees and charges remaining unexpended in the hands of the trustee in the special account designated "Farmers' Market Operating Fund," and unexpended on April 1st of each year may, by resolution of the county court, be transferred from said fund and applied towards the retirement of any outstanding farmers' market building bonds; provided, that said

fund may not in this manner be reduced to less than five thousand dollars ($5,000.00), or the court may, by resolution, authorize its expenditure by the farmers' market commission for betterments, extensions and repairs.

Sec. 20. Bonds of general manager and other personnel.

The commission shall fix the amount of bonds to be required by the general manager, and all others who are to handle or be responsible for the funds and/or property of the commission, or the county hereunder, and all such bonds shall have as surety thereon some approved bonding or surety company.

Sec. 21. Property of commission, bonds and revenue exempt from taxation.

All of the commission's facilities and property are hereby declared to be public property of a political subdivision of the state devoted to an essential public and governmental function and purpose and shall be exempt from all taxation by the state or any subdivision thereof. All bonds issued pursuant to this Act are hereby declared to be issued by a political subdivision of this state and for an essential public and governmental purpose, and such bonds, and the interest thereon and the income therefrom and all service charges, funds, revenues and other monies pledged or available to pay or secure the payment of such bonds or interest thereon, shall at all times be exempt from taxation by the state or any subdivision thereof, except for transfer, inheritance and estate taxes.

Nothing in this Act shall be construed as relieving the users of said marketing facilities from the payment of all licenses, fees and taxes imposed upon such business by state and local laws, including rules and regulations prescribed by the commission, and the failure of any user to pay said license, fees and taxes when due will operate to suspend his right to use said marketing facilities until said licenses, fees and taxes are paid. (Pr. Acts. 1959, ch. 305, § 8.)

Sec. 22. Use of funds for preliminary surveys, etc., operational reserve.

When and if the bonds herein provided shall be authorized by the county court, approved by referendum election of the people, and sold, then in that event, the said farmers' market commission shall have the right to place to the credit of the "Farmers' Market Operating Fund" ten thousand dollars ($10,000.00) of said proceeds of the bond sale to be used in making necessary surveys and investigations required preliminary to the building of said market facility; and provided that not less than five thousand dollars ($5,000.00) shall be reserved for the operation of said marketing facilities until such time as the rents, rates and fees charged for said services may make such facility self-supporting.

Sec. 23. Effective date.

This Act shall take effect from and after its passage,[3] the public welfare requiring it.

3. Passed March 30, 1949. Approved by governor March 31, 1949.

Article II. Fair Commissioners

Editor's note—This article consists of chapter 515, Private Acts 1923, as amended. The powers granted by this Act to the board of fair commissioners are continued by section 11.602 of the Metropolitan Charter. The provisions of this Act should be read as applicable to the Metropolitan Government of Nashville and Davidson County, rather than to Davidson County. Amendments are indicated by a historical citation following each amended section.

Sec. 1. Authority to operate divisional fair.

Counties having a population of not less than one hundred and sixty-five thousand (165,000) inhabitants nor more than two hundred thousand (200,000) inhabitants, according to the federal census of 1920, or any subsequent federal census, be and hereby are authorized to establish, maintain and operate a divisional fair for the benefit of the people of said counties, at which shall be exhibited, for the education of the people of said counties, the resources and developments of said counties and the State of Tennessee; and the progress of its people in all kinds of enterprises and endeavor, the agricultural, mineral, livestock, commercial, industrial, educational and all other interests, shall be duly exhibited, and every reasonable effort shall be made to develop, improve, encourage and stimulate all lawful and substantial interests and industries.

Sec. 2. Board of fair commissioners—Created; membership; term and compensation of members.[4]

There shall be, and there hereby is, created a board of fair commissioners, which shall be known as the "board of fair commissioners," and shall consist of seven (7) members, one of whom shall be the county judge, who shall ex officio be a member thereof; the remaining six (6) members shall be elected by the quarterly county court for a term of six (6) years, when and as the terms of office of the present members of said board expire. Not more than two members of the county court shall be eligible to election and to serve on said board at one time. The members of said board shall serve without compensation, but they shall be entitled to have all expenses actually incurred in the performance of their duties as such commissioners, on properly certified statements

submitted to and approved by the financial agent of such court. These expenses, as all others, are to be paid out of the fair funds. (Pr. Acts 1931, ch. 178, § 1.)

4. **Editor's note—**The membership and term of office of the board of fair commissioners is now controlled by section 11.601 of the Metropolitan Charter.

Sec. 3. Same—Rules and regulations; employees; restrictions on issuance of passes.

Said board of fair commissioners shall have full power to prescribe rules and regulations for its own government and organization, and for the holding of said fairs and expositions, and shall elect officers for the fairs, and shall choose whatever employees it may deem necessary and fix their compensation; provided, it shall not be lawful for the board, or any authority, to issue free passes to said fair to any person or persons other than employees in connection with said fair, including exhibitors and persons holding concessions and their bona fide employees upon the grounds; provided that it shall be lawful for said board to issue personal passes to members of the county court, to the governor of the state, to the commissioner of agriculture of the state, and to the mayor of the City of Nashville. (Pr. Acts 1931, ch. 178, § 2.)

Sec. 4. Same—Meetings; quorum.

The members of said board shall meet at the office of the county judge on the first Tuesday in April and November of each year, and may meet whenever called together upon five days' notice by the chairman upon his own motion, or upon written request of three members. A majority of the members of the board shall constitute a quorum for the transaction of business.

Sec. 5. Same—Annual reports.

Said board of fair commissioners, through its chairman and secretary, shall make a full report to the quarterly county court only at the January term of said court of the condition of the property and the operation of the fair, accompanied by a statement of all receipts and expenditures, verified by the oath of the chairman and the secretary, which accounts shall be at all times open to inspection and examination by the county auditor, or any committee the county court may appoint for that purpose.

Sec. 6. Same—Bond of secretary.

Said board of fair commissioners shall require its secretary to execute a good and solvent bond in the sum of five thousand dollars ($5,000.00), payable to the State of Tennessee for the use and benefit of said county, conditioned upon the faithful performance and discharge of his duties as secretary of said fair, the premium on said bond to be paid by the board of fair commissioners out of fair funds.

Sec. 7. Same—Accounting system.

The said board of fair commissioners shall install such system of accounting as the auditing commission of such counties coming under the provisions of this Act may direct.

Sec. 8. Special tax levy; authority to borrow money; title to property.

The county court of such counties may, at the July term of the 1923 court, and of each year thereafter, levy a tax upon all taxable property of the county of not more than two-tenths of a mill; to be known as the "fair tax," for the purpose of maintaining and operating a divisional fair. Said funds derived from the levy of this tax shall be expended under the direction of the board of fair commissioners. Said board shall have control of the disbursement of all funds collected by taxation, received from the State of Tennessee, or collected from gate receipts, concessions, or leases of the said fair property for educational or amusement purposes, for the operation, maintenance or improvement of the fair property.

Said board of fair commissioners is hereby vested with the power and authority to borrow money for the purpose of making permanent improvements in and on any property held and owned by the county for fair purposes, to purchase additional property for fair purposes, and to secure the payment of money so borrowed by mortgages or deeds of trust on the whole or any part of said fair property. Provided, that before buying any additional property or borrowing any money, or executing any such mortgages or deeds of trust, said board of fair commissioners shall first obtain the approval of the county court of the county, which approval shall be in the form of a resolution duly and legally adopted by said county court, authorizing the purchase of said additional property, designating the officers of said board of fair commissioners who shall sign and execute the evidences of any such indebtedness and the mortgages or deeds of trust securing the payment of same, and fixing the amounts to be borrowed and the maximum rate of interest to be paid therefor. And provided further, that any such obligations created in conformity with this provision, shall not be held or considered as the general obligation of the county, but shall be repaid only from the proceeds of the tax levy herein provided, and funds collected from gate receipts, concessions, or leases of said fair property for educational or amusement purposes. And provided further, that not more than two hundred fifty thousand dollars ($250,000.00) shall be so

borrowed, and when borrowed, shall mature in annual installments not more than six (6) years from date. And provided further, that until said loan is discharged, the tax levy of two-tenths (2/10) of a mill heretofore authorized shall be mandatory and shall be levied each and every year until said loan is liquidated or paid. And provided further, that the title to any property purchased under the provisions of this Act shall be taken in the name of Davidson County. Provided, however, that all funds received by the board of state fair commissioners shall rotate through the county trustee's office, for the more efficient and accurate accounting thereof. (Pr. Acts 1925, ch. 235, § 1; Pr. Acts 1927, ch. 203, § 1.)

Sec. 9. Cooperation with state division of fairs.

The board of fair commissioners shall have authority to cooperate with the state division of fairs on all matters, but if the expenditure of funds is contemplated beyond the amount raised by any tax levy made by the county court, hereinbefore provided, such matter shall be referred to the county court for its approval or disapproval.

Sec. 10. Powers and duties of board generally.

Said board of fair commissioners is hereby vested with the power, authority and duty to enter into negotiations with the commissioner of agriculture of the State of Tennessee, for the surrender and cancellation of any lease now held by the State of Tennessee of any fair property in such counties, and to take complete charge and control on behalf of such counties, and they shall use and maintain said property by holding thereon, at least once a year, for not less than six days, a fair or exposition for the benefit of the people of such counties, and they may lease for amusement purposes said property at such times and in such ways as not to interfere with the operation of said fair, the proceeds received from said leases to be used in the maintenance of said fair, at which shall be exhibited, as far as possible, the resources of said county and the State of Tennessee, and the progress of its people in all kinds of enterprises and endeavor. The agricultural, mineral, livestock, commercial, industrial, and all other interests, shall be duly exhibited, and every reasonable effort shall be made to develop, improve, encourage and stimulate all lawful and substantial interests and industries.

Sec. 11. Special premiums and other promotional items.

Said board of fair commissioners shall have power to formulate rules for the offering, and to offer special premiums, and in every other way possible promote the best interest of said counties in the conduct and management of said divisional fair.

Sec. 12. Effective date.

This Act shall take effect from and after its passage,[5] the public welfare requiring it.

5. Passed March 28, 1923. Approved by the governor March 31, 1923.

Article III. Parole Officer

Editor's note—This article consists of chapter 490, Private Acts 1947, as amended. The provisions of this Act should be read as applicable to the Metropolitan Government of Nashville and Davidson County, rather than to Davidson County. Amendments are indicated by a historical citation following each amended section.

Sec. 1. Appointment.

That it shall be the duty of the Judges of the Criminal Court of Davidson County, Tennessee, to appoint a Parole Officer for Davidson County, Tennessee, to serve at the pleasure of said judges.

Sec. 2. Qualifications.

Said parole officer shall be not less than 25 years of age, shall have had a high school education, shall be a person of good character and fitted physically, mentally and morally for said position, shall be acquainted with social welfare work and have ability, training and capacity to make investigations and influence human behavior.

Sec. 3. Duties—Generally.

Said parole officer shall work under the supervision, direction and control of said criminal judges and the district attorney general and shall assist them in the investigation, supervision, oversight and control of persons who petition for suspended sentences or paroles, or what are granted a suspended sentence or parole by said judges.

Said parole officer shall, under the direction of said judges and the district attorney general investigate and make reports to said official as to the circumstances, history, criminal record, social, physical and mental condition of persons who apply to be released, or are released, under a suspended sentence or parole. Said officer shall also investigate and make reports to said officials relating to revocation of suspended sentences or paroles.

Sec. 4. Investigation of petitions.

Upon the filing of a petition for suspended sentence or parole, and provided the requirements and provisions of Chapter 76, of the Public Acts of 1931, have been

complied with, said petition shall be referred to the parole officer herein provided for, and said parole officer shall, as soon as possible thereafter, make a full investigation of the averments of the petition, the circumstances, history, criminal record and the social, physical and mental condition of the petitioner, and shall file a written report, setting out in detail the result of said investigation. A copy of said written report shall be furnished each of the criminal judges and the district attorney general.

No petition for a suspended sentence or parole shall be considered by the court unless and until the provisions of Chapter 76, Public Acts of 1931, and the provisions of this Act, have been fully complied with, and unless and until the written report of the parole officer has been filed and copies furnished as hereinabove provided.

Sec. 5. Supervision of persons paroled or released under suspended sentences.

Said parole officer shall interview and visit, from time to time, persons paroled or released under suspended sentences by the criminal judges; shall supervise, investigate, check on and report to said judges and the district attorney general the actions, conduct, behavior and progress of said persons; and may require the parolee to report to said parole officers at regular intervals; shall aid all such persons in the amendment of their ways and in rehabilitating them; shall assist in securing employment for them; and shall aid and assist them in every possible way, to the end that said persons shall become and remain law-abiding citizens.

Sec. 6. Compensation.

The compensation of said parole officer shall be two hundred dollars ($200.00) per month, the same to be paid out of the Ordinary Fund of the county, said payments to be made on voucher issued by the appointing authorities. Said parole officer shall be entitled to the benefits of the Davidson County Pension and Retirement Act, but shall not be subject to civil service. In addition to the salary above provided, said parole officer shall be reimbursed from the same source as above set forth for his reasonable, necessary and actual expenses incurred in the discharge of his duties as such parole officer, an itemized list of said expenses to be submitted, under oath, to the criminal judges and the district attorney general and approved by them before payment; but in no event to exceed fifty dollars ($50.00) per month.

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 7. Records, data and information on file.

Said parole officer shall keep such records, data and information as is required herein, or as may from time to time be prescribed by the criminal judges and the district attorney general, shall keep a file copy of his reports; shall keep complete social, physical, mental and criminal records of each person placed under his supervision or investigated by him.

Said parole officer shall be furnished with necessary office and supplies by the criminal court clerk.

The criminal judges may make such rules as they deem proper as to the privacy of said records and their use by others than the judges, district attorney general and said parole officer.

Sec. 8. Effective date.

This Act [shall] take effect from and after its passage,[6] the public welfare requiring it.

6. Passed February 27, 1947. Approved by the governor March 6, 1947.

Article IV. Juvenile Court

Editor's note—This article consists of chapter 390, Private Acts 1953, as amended. The provisions of this Act should be read as applicable to the Metropolitan Government of Nashville and Davidson County, rather than to Davidson County. Amendments are indicated by a historical citation following each amended section.

Sec. 1. Juvenile court created.

There is hereby created and established in and for Davidson County, Tennessee, a court with the title and style of Juvenile Court of Davidson County, Tennessee. Such court shall be a court of record, presided over by a judge who shall have the qualifications hereinafter provided, and whose salary shall be provided and paid as hereinafter provided. Such judge shall be known and have the title of Judge of the Juvenile Court of Davidson County, and shall devote his full time to the duties of such office of judge, and shall have no other professional activity; and there is hereby created the office of clerk of said court; that said court shall have a seal, and that the judge and clerk, within their respective functions as such officers of said court, shall have the power and authority to administer oaths and affirmations whenever the same are required by law in connection with any case, procedure, process or otherwise in such court.

Sec. 2. Definitions.

When used in this Act, unless the context otherwise requires:

(a) *"The court"* shall mean the Juvenile Court of Davidson County.

(b) *"The judge"* shall mean the judge of the juvenile court of said county.

(c) *"The clerk"* shall mean the clerk of the juvenile court of said county, or deputy clerk.

(d) *"Child"* shall mean any person who is under the age of seventeen years.

(e) *"Adult"* shall mean a person who is seventeen years of age or older.

(f) *"County"* shall mean Davidson County in the State of Tennessee.

(g) *"Peace officer"* shall mean the Sheriff of Davidson County or any of his deputies, any constable of said county, and any police or truant officer of said county or of any municipal corporation in said county.

(h) The singular shall include the plural, the plural the singular, and the masculine the feminine, when not inconsistent with the intent of the Act.

Sec. 3. Jurisdiction.

The court shall have exclusive original jurisdiction in said county of all cases arising in or triable in said county of any person under the age of seventeen (17) years, who may be charged with the violation of any city ordinance, or who may be charged with the commission of an offense against the State except wherein the offense is rape, murder in the first degree or murder in the second degree, or where such person has been found to be incorrigible by the court, but in any such case which may come before the court wherein any person under seventeen years of age is charged with rape, murder in the first degree or murder in the second degree, or where such person has been found to be incorrigible by the court and the Judge of the court shall conclude that there is probable cause to believe that the child has been guilty of the crime of rape, murder in the first degree or murder in the second degree, or has been found to be incorrigible, the court shall at once dismiss said cause and assume no further jurisdiction thereof, and then at once remand said child to the Sheriff of the county to be dealt with for his alleged offense as provided by criminal laws.

It is the purpose of this Section of this Act to give such Juvenile court all the jurisdiction of a Juvenile Court in Davidson County as contemplated by the laws of Tennessee, and the court shall have all the jurisdiction, powers and authority of a Juvenile court in said county contemplated in the laws of Tennessee as stated in Sections 10269 to and including 10309 of the Code of Tennessee and any other general laws of the State of Tennessee now in force and effect or hereinafter to become of force and effect; and said court shall have exclusive original jurisdiction of all non-support, failure to provide, abandonment or desertion cases wherein any person is charged with the non-support or failure to provide for any child under sixteen (16) years of age, or of his wife, or is charged with the abandonment or desertion of such child or wife as provided by the laws of the State of Tennessee, except where such charge shall be made as an incident to bill filed in a court of competent jurisdiction wherein a prayer is contained for a divorce or a decree awarding separate support and maintenance. The court shall have exclusive original jurisdiction:

(a) Concerning any child within said county, or any case arising or triable in said county concerning any child:

(1) Whose parent or other person legally chargeable with the care, support and maintenance of such child neglects or refuses, according to his means or ability, to provide proper or necessary support, maintenance, education, medical or surgical or other necessary care as contemplated by the general laws of the State, or who is abandoned or deserted by his parent or other person having the legal charge and care of such child;

(2) Whose occupation, behavior, environment or associations injurious to the welfare of the child;

(3) Who deserts his home or is habitually disobedient or beyond control of parent or teacher or other lawful custodian;

(4) Who, being required by law to attend school, wilfully violates the rules of school or absents himself therefrom, or who in any other manner shall be charged with being or designated as a delinquent, as delinquent is defined, contemplated or included in the laws of the State of Tennessee.

(b) To determine the custody or control of the person of any child in said county or in connection with whom any question, case or controversy may arise in said county, or any such questions, case or controversy which by the general law, is triable in said county; except that this Act shall not interfere with the right of a Circuit Judge or a Chancellor to award custody of minor children as a part of a decree of divorce or separate support and maintenance.

(c) That in the event a petition to determine custody or support of any minor child is pending or has been filed, the subsequent filing of a petition for a divorce or for separate support and maintenance in either the Circuit or Chancery Courts of Davidson County, Tennessee, will not effect the jurisdiction of the Juvenile Court of Davidson County, to the extent that such jurisdiction may already have attached. Likewise, the juvenile court shall not entertain any petition filed with respect to support or custody of children where a petition for divorce or for separate support and maintenance between the parents of such child or children is pending.

Sec. 4. Marriage of a juvenile.

The court shall have original jurisdiction concurrent with other courts having such jurisdiction for granting judicial consent to the marriage of any child when such consent would be to the interest or welfare of such child or is required by law.

Sec. 5. Right by habeas corpus to determine custody or guardianship of children.

Nothing contained in this Act is in any wise intended to attempt to deprive any other court, such as the Circuit, Criminal or Chancery Court, of any right by habeas corpus to determine the custody or guardianship of children as is now provided by law and practiced by such courts.

Sec. 7. Mentally defective or mentally disordered children.

Whenever it shall be determined by the judge of the juvenile court that a child is so mentally defective or mentally disordered that such child should be committed to an institution for such cases, the court may commit such child to such institution as is fitted to care for such cases wherein the court is authorized to so do by provisions of the general laws, or to such institution otherwise made available to the court through arrangements with the county or state authorities; and where no such institution is made available to the court, the judge shall certify the facts and the needs of the child to a court of competent jurisdiction, and said judge shall take such action as appears in his opinion is for the best interest of said child.

Sec. 8. Wilful failure to provide for wife or child.

The court shall have jurisdiction to try cases involving the wilful failure or any husband, without good cause, to neglect or fail to provide for his wife according to his means, leaving her destitute or in danger of becoming a public charge as set forth in Section 11370 of the Code in which case the procedure shall be as provided in Section 11371, et seq., of the Code of Tennessee; and the Court also have jurisdiction to try causes involving the wilful failure to provide for his child under sixteen years of age, leaving such child destitute, as set forth in Section 11379 of the Code, in which case the procedure shall be as provided in Section 11380, et seq., of the Code of Tennessee.

The court shall further have jurisdiction to try a person charged with violating Section 11370 and/or 11379 of the Code of Tennessee, where the person charged with said offense enters a plea of not guilty; and, after being advised by the court of his Constitutional right to aid of counsel, the right to be tried upon presentment or indictment by a Grand Jury, the right of trial by jury, and his other Constitutional rights, the defendant agrees to waive presentment or indictment by a Grand Jury and the right of trial by jury of his peers, the court may proceed to hear and determine said cause.

Said waiver shall be written and attached to the warrant substantially in words and figures as follows:

"The defendant, _____, pleads not guilty and waives his right to be tried only by indictment or presentment preferred by a Grand Jury and likewise waives trial by a jury of his peers."

The court thereupon shall proceed to hear said cause and determine it as provided for the determination of such causes in Article XXIX of Chapter 10 of the Code of Tennessee.

Any monies paid into court under this section shall be disbursed as the court may direct.

Sec. 9. Appointment of judge; salary; authority.

The person who has held, in January, 1953, the position of Judge of the Juvenile and Domestic Relations Court, established under authority of Chapter 246, Private Acts of 1947 as amended, same being the Charter of the City of Nashville, shall be the Judge of the Juvenile Court of Davidson County and shall serve until the next general election at which time the Judge of the Juvenile Court of Davidson County shall be elected by the people of said county to serve until the next general judicial election, the judge shall then be elected by the people of the county and shall serve for a term of eight (8) years and until his successor is elected and qualified. The Judge of said Juvenile Court of Davidson County shall receive a salary of seven thousand five hundred dollars ($7,500.00) per annum. Said judge shall not be less than thirty (30) years of age and a resident of Davidson County for not less than one (1) year. Said judge shall take and subscribe to the same oath of office as that prescribed for all judges in the state.

The judge is hereby authorized and empowered to make and promulgate rules and regulations for the administration of the juvenile court, to fix the times and places at which said court shall meet and prescribe the sessions at which all persons in the jurisdiction of the said juvenile court shall have their cause set for trial.

All monies derived from fees and fines assessed upon conviction of any persons by the judge shall be paid into the county treasury of said county.

Editor's note—See Metropolitan Charter § 18.05 for changes in salary and compensation through the general pay plan.

Sec. 10. Clerk of court to maintain records.

The clerk of the court shall, under the supervision of the judge, keep all the records of the court, and shall have all the duties, authorities and obligations as provided by Sections 10050, through and including 10081 of the Code of Tennessee as applicable to the office. Said clerk shall give a surety bond for the faithful performance of his duties and the amount to be fixed by the County Judge of Davidson County.

Sec. 11. Appointment of juvenile court personnel or employees.

That the judge shall appoint, pursuant to Civil Service Provisions applicable to Davidson County Civil Service Employees, and shall designate a clerk, a chief probation officer, and a stenographer, and such other clerks, probation officers, matrons, attendants and other employees as may be necessary to carry on efficiently the work of said juvenile court, and as may be authorized by the Quarterly Court of Davidson County and as provided herein.

All personnel of the Juvenile and Domestic Relations Court established by the Charter of the City of Nashville, same being Chapter 246 of the Private Acts of 1947, as amended, who held such positions during the month of January, 1953, shall be employees of the court and hold positions of the same or others comparable to their present positions and at salaries not less than that paid to them during said month.

All personnel or employees employed by the Juvenile and Domestic Relations Court, established as set out in the preceding paragraph, who, during January, 1953, was contributing and paying into the Civil Service Employees Pension Fund of the City of Nashville, may continue making such contributions based on the salary received by them at the time of their separation from service with the City of Nashville with all benefits and rights of disability and retirement as provided by the Charter of the City of Nashville, and shall not be subject to the requirements nor have the benefits as provided by Chapter 274 of the Private Acts of 1943, as amended, provided such persons accept employment with Davidson County and continue in said employment in the Juvenile Court of Davidson County. In the event any employee or employees shall fail to contribute or pay into the said pension fund, then said employee or employees shall become subject to all the provisions and requirements of Chapter 274, Private Acts of 1943, as to contributions and pensions and disability rights.

Anything hereinabove notwithstanding to the contrary, all personnel and employees of the Juvenile and Domestic Relations Court Established under the Charter of the City of Nashville, and holding positions in January, 1953, who were under City Civil Service, if and when they accept the same position or a comparable position with the court herein created, shall be brought with the civil service provisions heretofore made respecting employees of Davidson County and they shall be designated civil service employees and accorded full civil service status as such employees.

An employee of the court may be removed, discharged or reduced in pay or position only after he has been given the reasons therefor in writing and afforded an opportunity to be heard in accordance with such civil service provisions, rules and regulations.

All officers of the court shall have the power of peace officers except that they shall not serve process in civil cases unless arising in this court.

Sec. 12. Chief probation officer—Duties generally.

The chief probation officer, under the general supervision of the judge, shall organize, direct and develop the administrative work of the court, including the social, financial and clerical work, assign cases for investigation or treatment to the technical and professional employees, and shall perform all such other duties as the judge shall direct.

Sec. 13. Preliminary inquiry; petition.

Whenever any person informs the court that a child is within the purview of this Act, the court may make a preliminary inquiry to determine whether the interests of the public or of the child require that further action be taken. Thereupon the court may make such informal adjustment as is practicable without a petition, or a petition may be filed by any person.

The petition shall be verified and may be upon information and belief. It shall set forth plainly the facts which allegedly bring the child within the purview of this Act; and in addition the following facts, if known: (1) name, age, and residence of the child; (2) the names and residences of his parents; (3) the name and residence of his legal guardian, if there be one; (4) names and residences of the person or persons having custody or control of the child, and (5) names and residence of the nearest known relative if no parents or guardian can be found. If any of the facts herein required are not known by the petitioner, the petition shall so state.

Sec. 14. Copy of petition and summons served upon person(s) having custody of child.

After a petition shall have been filed and after such further investigation as the court may or shall direct, a

copy of said petition, together with the summons issued by the clerk, shall be served upon the person or persons having the custody or control of the child, requiring such person or persons to appear personally and bring the child before the court at the time and place stated. If the person so summoned shall be other than a parent or guardian of the child, the parent or guardian or both shall be notified of the pendency of the case and of the time and place appointed, by personal service before the hearing, except as hereinafter provided. Summons may be issued requiring the appearance of any other person whose presence, in the opinion of the judge, is necessary.

If it appears that the child is in such condition or surroundings that his welfare requires that his custody be immediately assumed by the court, the judge may order, by endorsement upon the summons, that the officer serving the same shall at once take the child into custody.

Sec. 15. Summonses issued by officer of the court.

Summonses and other process issued in connection with any proceeding in the court shall be served by an officer of the court or by any other officer authorized by law to serve process in the county to which the process is directed. Service shall be had in the manner provided by the general laws of Tennessee.

Sec. 16. Power and authority of court.

The court shall have all the powers of a court to cause to be brought before it by proper process and to punish those who refuse to obey its lawful orders and to punish by summary procedure those who are guilty of contempt as the same is defined by law, when such contempt is in the presence of the court, by a fine of not more than fifty dollars ($50.00), or by imprisonment of not more than ten (10) days, or both: and that for the purpose of compelling the attendance of witnesses and others whose presence in court is necessary, and to enforce its lawful orders, judgments and decrees, the court shall have all the power and authority to issue attachments and other processes to bring such person before the court.

Sec. 17. Children in court custody.

Whenever a child is taken into custody, unless it is impracticable or inadvisable or has been otherwise ordered by the court, he may be released to the custody of a parent, guardian or custodian, upon the written promise of such parent, guardian or custodian to bring the child to the court at the time fixed. If such person shall fail to produce the child as agreed or upon notice from the court, a summons or a warrant may be issued for the apprehension of such person or of the child. If not so released, such child shall be taken immediately to the court or the place of detention designated by the court. Pending further disposition of the case, a child whose custody has been assumed by the court may be released to the custody of a parent or other persons appointed by the court, or be detained in such place as shall be directed by the court, subject to further orders.

Nothing in this Act shall be construed as forbidding any peace officer from immediately taking into custody any child who is found violating any law or ordinance. In every case the officer taking the child into custody shall immediately bring into the court said child, making proper charge against him, and relinquishing custody to the court, and the case shall then be proceeded with as provided in this Act.

No child shall be confined in any police station, prison or jail, or be transported or detained in association with criminal, vicious or dissolute persons; except that a child fifteen (15) years of age or older whose conduct or condition is such as to endanger his safety or welfare or that of others in the detention facilities for children may, with the consent of the judge or chief probation officer, be placed in a jail or other place of detention for adults, but in a room or ward entirely separate from adults.

Neither the fingerprints nor a photograph shall be taken of any child taken into custody for any purpose, without the consent of the judge.

Sec. 18. Quarters and facilities for children in court custody.

The Quarterly Court of Davidson County shall provide adequate quarters to meet the needs for care of children in custody of the court pending an investigation or hearing and disposition of their case. Such facilities, together with any and all other facilities that may be provided or afforded for the detention, care or custody of children, shall be under the supervision of the court. The court may also arrange with any licensed institution, agency or the State Department of Public Welfare to receive for temporary care and custody children within the jurisdiction of the court.

Sec. 19. Cases involving children.

All cases of children shall be heard separately from the trial of cases against adults. The hearing shall be conducted in an informal manner, and may be adjourned from time to time. Stenographic notes or other transcript of the hearing shall be required only if the court so orders. The general public shall be excluded and only such persons admitted as have a direct interest in the case. The presence of the child in court may be waived by the court at any stage of the proceedings.

Sec. 20. Transfer of care, custody and control.

If the court shall find that the child is within the purview of this Act, it shall so decree and may by order duly entered proceed as follows:

(a) Whenever in the course of a proceeding instituted it shall appear to the court that the parents or the surviving parent of a child, or the mother of a child born out of wedlock, have abandoned such child or have substantially and continuously or repeatedly refused, being financially able, have neglected to give such child parental care and protection; or that such parent or parents are unfit by reason of their conduct or condition which is seriously detrimental to the said child, the court shall have jurisdiction to transfer the care, custody and control of such child to some other person, agency, institution or the State Department of Public Welfare, and may terminate in so far as may be necessary the rights of such parent or parents with reference to such child, provided that the cause shall be retained in court as provided in Section 21 herein, and the parent or parents may later be granted the right to file a petition seeking the modification of the former order, unless some other court shall have taken jurisdiction of the matter upon a petition for adoption.

Such transfer or termination shall be made only after a hearing before the court, and the court shall cause notice of the time, place and purpose of such hearing to be served on such parent or parents personally at least twenty-four (24) hours before the time fixed for hearing; or if the court is satisfied that personal service cannot be effected, then such notice may be given by publication thereof in a newspaper in the county once a week for four consecutive weeks prior to the date of hearing.

(b) If a child is abandoned or neglected by one parent the rights of only such parent with reference to such child may be terminated as provided in subsection (a) of this section, without affecting the rights of the other parent.

(c) Upon the application of the parents or the surviving parent, or the mother of a child born out of wedlock, the court may order the transfer of the permanent care, control and custody of such child, and if it appears wise, the termination of all the rights of a parent or the parents with reference to such child, provided the court after a hearing finds such transfer or termination to be in the best interest of the child.

(d) Place the child on probation or under supervision in his home or in the custody of a suitable person elsewhere, upon such conditions as the court shall determine.

(e) Commit the child to the custody or to the guardianship of a public or private institution, agency, or the State Department of Public Welfare authorized to care for children or to place them in family homes.

(f) Order such other care and treatment as the court may deem to be for the best interests of the child, except as herein otherwise provided. The court may dismiss the petition or otherwise terminate its jurisdiction at any time for good cause shown.

(g) Whenever the court shall commit a child to any institution, agency, or the State Department of Public Welfare, it shall transmit with the order of commitment a summary of its information concerning the child, and such institution, agency, or the State Department of Public Welfare shall give to the court such information concerning such child as the court may at any time require.

Sec. 21. Modification of court decree.

Any decree or order of the court may be modified at any time upon notice to any person adversely affected.

A parent, guardian, or next friend of a child who has been committed by the court to a public or private institution or agency, or the State Department of Public Welfare, or placed in the care or guardianship of any person, may at any time file with the court a verified petition for the release of the child. The court, upon due notice to all concerned, shall proceed to hear and determine the question at issue. It may thereupon order that such child be restored to the custody of its parents or guardian or be retained in the custody of the institution, agency or person, or may make any further order.

Sec. 22. Children placed under guardianship governed by same religious faith.

In placing a child under the guardianship or custody of an individual, the court shall, whenever practicable, select a person or agency or institution governed by persons of the same religious faith as that of the parents of such child, or in case of a difference in the religious faith of the parents, then of the religious faith of the child, or, if the religious faith of the child is not ascertainable, then of the faith of either of the parents.

Sec. 23. Examination by physician, psychiatrist or psychologist; hospital care.

The court may cause any person adjudged to be within its jurisdiction to be examined by a physician, psychiatrist or psychologist.

Whenever a child concerning whom a petition has been filed appears to be in need of nursing, medical or surgical care, the court may order the parent or other person responsible for the care and support of such child

to provide such care in a hospital or otherwise. If such parent or other person fails to provide such care, the court may, after due notice, enter an order therefor, and the expense thereof shall be paid from the appropriation provided when certified by the judge. But if the court is of the opinion that the parent or other person liable therefor is able to bear such expense and fails or refuses to do so, such person shall be tried as in other nonsupport cases.

Sec. 24. Court ordered conditions of behavior.

In all failures to provide, non-support, abandonment and desertion cases the court shall have the jurisdiction to make an order of protection and assistance or as a condition of an order for support and maintenance setting forth reasonable conditions of behavior to be observed for a specified time which shall be binding upon husband or wife, or both. Such orders may require either spouse to: (a) stay away from the home or other spouse or children, (b) permit the other to visit the children at reasonable or stated periods, (c) abstain from offensive conduct against the other or against the children, (d) give proper attention to the care of the home, (e) refrain from acts or commissions that tend to make the home an unfit place for the children or the other spouse.

Sec. 25. Court costs or witness fees.

In proceedings under this Act court costs or witness fees may be taxed against any party to a proceeding, or against the county, within the judicial discretion of the judge, but no salaried officer of the county including the sheriff and his salaried deputies and no salaried officers of any municipality therein shall be entitled to receive any fee for the service of process or for attendance in court in such proceedings, but all other persons acting under orders of the court may be allowed and paid for services or service of process and attendance or serving at witnesses the fee provided by law for like services in cases before the Circuit Court, the same to be paid from the appropriation provided when certified by the judge.

Sec. 26. Budget for operation of court.

All salaries and other expenses incurred in complying with the provisions of this Act shall be a county charge. The judge of the court shall present to the Quarterly Court of Davidson County each year, a proposed budget for the operation of the court for the next fiscal year in accordance with the law, practice, rules and procedure of said Quarterly Court; that after the passage of this Act, and before funds are made available in said budget, all salaries, charges and expenses necessary and incident to the establishment, organization and operation of the court shall be paid out of the general funds of the county. The Quarterly Court of Davidson County shall each year appropriate funds sufficient for the efficient operation of said court, within the intent and purpose of this Act.

Sec. 27. Official records.

The court shall make and keep records of all cases brought before it, and shall devise and cause to be printed such forms for social and legal records and such other papers as may be required. The court's official records shall be open to inspection only by consent of the judge to persons having legitimate interest therein. All information obtained and social records prepared in the discharge of official duty by any employee of the court shall be privileged and shall not be disclosed directly or indirectly to anyone other than the judge or other persons entitled to receive such information under this Act, unless and until otherwise ordered by the judge.

The name or picture of any child under the jurisdiction of the court shall not be made public by any newspaper, radio, or television station except as authorized by order of the court. Any person who violates this provision shall be guilty of a misdemeanor and subject to prosecution in the criminal court of this county. The Judge of the Juvenile Court of Davidson County shall exclude photographers and reporters from all hearings and prohibit any publicity respecting any child under the jurisdiction of the court which may be injurious to the interest or reputation or welfare of such child.

Sec. 28. Appeal from court decree or order.

No appeal from a decree or order of the court shall be granted or allowed; provided however that a trial de novo may be had by an interested party aggrieved by decree or order by petition for a writ of certiorari showing merit, and properly sworn to, filed with the Circuit Courts of Davidson County within ten (10) days from the date of entry of the decree or order complained of, and the writ be granted; and provided further that for the purpose of consolidating with any separate maintenance or divorce cause pending in the Chancery Courts of Davidson County issues involved in proceedings determined by said juvenile court, petition for certiorari may likewise be filed and the writ ordered issued by any chancellor presiding over such chancery courts.

But in no case shall a writ of supersedeas be issued by any judge or chancellor to modify or vacate any order of said juvenile court respecting custody or support of any child without a hearing and without at least forty-eight (48) hours prior notice thereof to all interested parties, including the chief probation officer of said court.

Sec. 29. Cooperation with court.

It is hereby made the duty of every public official or department to render all assistance and cooperation within his or its jurisdictional power which may further the objects of this Act. The court is authorized to seek the cooperation of all societies or organizations having for their object the protection or aid of children.

Sec. 30. Welfare of children.

This Act shall be construed as remedial in character and shall be liberally construed to an end that each child coming within the jurisdiction of the court shall receive such care, guidance and control, preferably in his own home, as will conduce to the child's welfare and the best interest of the state and that when such child is removed from the control of his parents, the court shall secure for him care as nearly as possible equivalent to that which should have been given by them.

Sec. 31. Severability.

If for any reason any word, clause, paragraph or section of this Act shall be held unconstitutional, it shall not invalidate or affect the remainder of said Act.

Sec. 32. Effective date.

This Act [shall] take effect from and after its passage,[7] the public welfare requiring it.

7. Passed April 10, 1953. Approved by the governor April 10, 1953.

Article V. Employee Pensions and/or Retirement, Insurance Compensation and Benefits

Editor's note—This article consists of chapter 274, Private Acts 1943, as amended by Private Acts 1961, chapter 381. The provisions of this Act should be read as applicable to the Metropolitan Government of Nashville and Davidson County, rather than to Davidson County. Amendments are indicated by a historical citation following each amended section.

ARTICLE 1. GENERAL PROVISIONS

Sec. 1.01. Definitions.

As used in this Act, the following words and phrases shall have the meaning indicated unless otherwise defined or required by the context:

(a) *System* shall mean the Davidson County Pension System created by this Act.

(b) *Employer* shall mean Davidson County. Any department of Davidson County, other than the Department of Education, or any board of Davidson County, other than the Board of Education, shall be deemed to be Davidson County for the purposes of this Act.

(c) *Employee* shall mean any person who is regularly employed by the employer; any person who is an official of the employer and who is elected by popular vote or by the Davidson County Quarterly Court; any person who is regularly employed in the service of the employer by an elected official of the employer; and any person who is regularly employed in the service of the employer and who is appointed by an elected official of the employer. In all cases of doubt, the pension commission shall determine whether or not a person is an 'employee' as defined herein.

(d) *Member* shall mean either a member of Division A or a member of Division B.

(e) *Member of Division A* shall mean any employee who becomes a member of Division A as provided in Article 2 of this Act.

(f) *Member of Division B* shall mean any employee who becomes a member of Division B as provided in Article 3 of this Act.

(g) *Retired member* shall mean any person who is no longer an employee and is receiving a benefit provided by this Act, or any Act amendatory thereof.

(h) *Fund* shall mean the Davidson County Pension Fund created by this Act which shall consist of all assets of the system.

(i) *Fiscal year* shall mean the fiscal year of the employer.

(j) *Pension commission* or *commission* shall mean the pension commission established by this Act which shall administer the system in accordance with the provisions of this Act.

(k) *Effective date* shall mean July 1, 1961, which shall be the effective date of this Act.

(l) *Earnings* shall mean the total compensation paid to an employee for his personal services rendered to the employer, excluding overtime payments, fees of office paid to an employee who is not elected by popular vote or by the Davidson County Quarterly Court, compensation paid to members of boards or commissions of the employer for personal services rendered as members of such boards or commissions, perquisites, or other compensation not a part of the set scale for an established normal working period; provided, however, that any compensation paid by the State of Tennessee or the employer upon which benefits under the Tennessee State Retirement System or any other retirement system, other than this system, are based shall be excluded from 'earnings' as defined herein.

(m) *Service* shall mean years and completed calendar months of service of an employee of the employer.

Sec. 1.02. Introduction.

There is created and established, as of the effective date of this Act, a pension system for employees of Davidson County to be known as the 'Davidson County Pension System.' All transactions by the Davidson County Pension System shall be in the name of the system. The system shall have all the powers and privileges of a corporation, and the system shall function as hereinafter provided. All benefits payable to retired members and their survivors under Chapter 274 of the Private Acts of 1943, and all amendatory Acts thereof, shall continue unimpaired, and such benefits shall be an obligation and liability of this system, subject to the provisions of this Act. All funds held by the Davidson County Trustee in connection with Chapter 274 of the Private Acts of 1943, and all amendatory Acts thereof, shall be deposited in the fund established by this Act and be administered in accordance with the provisions of this Act.

The Davidson County Pension System provides for two (2) classifications of membership: Division A and Division B. Division A, set forth in Article 2 of this Act, shall cover employees who have not been covered, prior to the effective date of this Act, by any pension plan of the employer; all persons who become employees after the effective date of this Act; and employees who are members of Division B, as provided in this Act, and who voluntarily elect to transfer their membership to Division A in accordance with the provisions of this Act. Division B, set forth in Article 3 of this Act, shall cover persons who are employees on the effective date of this Act and who were covered by the Davidson County Employees' Pension and Insurance Fund as it existed on the day before the effective date of this Act. Article 1 of this Act shall apply to members of Division A and members of Division B. Article 2 of this Act shall apply to members of Division A but shall not apply to members of Division B. Article 3 of this Act shall apply to members of Division B but shall not apply to members of Division A. No employee shall be a member of both Division A and Division B, notwithstanding anything in this Act to the contrary. Any benefit payable to a retired member in accordance with the provisions of this Act shall not be payable during any period of time he becomes or is an employee, notwithstanding anything in this Act to the contrary.

Sec. 1.03. Composition and organization of pension commission.

The pension commission shall consist of the Davidson County Judge, the Davidson County Trustee, and the Davidson County Court Clerk. The Davidson County Judge shall be chairman of the commission, and the Davidson County Court Clerk shall be secretary of the commission. A majority of the members of the commission shall constitute a quorum, and all action taken by the commission shall be by affirmative vote of the majority of all members of the commission. The pension commission shall meet at least once in each quarter of each calendar year, and the commission may meet in special session upon call by any member of the commission. Any two (2) members of the commission shall execute any certificate, statement, or written direction on behalf of the commission, and any person interested in the system shall be entitled to rely upon such execution as being an action of the commission.

Sec. 1.04. Duties and powers of pension commission.

The commission shall have complete control of the administration of the system, subject to the provisions of this Act, with all powers necessary to enable it properly to carry out its duties in that respect. Not in limitation, but in amplification of the foregoing, the commission shall have the power, not inconsistent with the provisions of this Act, to construe this Act and to determine all questions that may arise hereunder, including questions relating to eligibility of employees to become members and the amount of benefit to which any member, beneficiary, survivor or contingent annuitant may become entitled hereunder. The decisions of the commission upon all matters within the scope of its authority shall be final. The commission shall establish rules and procedures to be followed by members, beneficiaries, survivors and contingent annuitants in filing applications for benefits, in furnishing and verifying proofs necessary to determine age, earnings, or in any other matters required to administer the system.

The commission shall receive all applications for benefits. Upon receipt by the commission of such an application, it shall determine all facts which are necessary to establish the right of the applicant to benefits under the provisions of the system and the amount thereof as provided in this Act. Upon request, the commission will afford any applicant the right of a hearing with respect to any findings of fact or determination. The commission, as it sees fit, shall prepare from time to time information concerning the system and distribute such information to employees and members. The commission shall prepare and publish an annual financial report showing all receipts, disbursements, assets and liabilities of the system. All proceedings and records of the commission shall be open for inspection by the public.

To enable the commission to perform its functions, the employer shall supply full and timely information to the

commission on all matters relating to the earnings of members, their length of service, their retirement or other causes of termination of employment, contributions to the fund by members, and such other pertinent facts as the commission may require.

The commission shall certify to the Davidson County Trustee the signatures of all members of the commission. The Davidson County Trustee shall be entitled to rely on the last received such certification of signatures until written notice to the contrary from the commission has been received by the Davidson County Trustee.

The commission shall be empowered to employ the services of legal counsel, investment consultants, acturial consultants, and the services of others which, in the sole discretion of the commission, may be necessary to maintain a soundly designed, administered and financed pension system. All expenses incurred by or on behalf of the pension commission in the administration of the system during each fiscal year shall be paid from the fund upon receipt by the Davidson County Trustee of written authorization by the pension commission. Members of the commission shall serve without compensation as members of the commission, but members of the commission shall be reimbursed for the actual expenses incurred by them in the performance of their duties.

As soon as practicable after the effective date, the commission shall adopt such acturial and other tables as are necessary for the administration of the system. An annual acturial valuation shall be made to determine the contingent assets, contingent liabilities and funding requirements of the system. At least once in each five (5) year period, the commission shall cause an acturial investigation to be made of the experience under the system. The commission shall adopt from time to time, as it sees fit, new acturial and other tables necessary for the administration of the system.

The commission shall be entitled to rely upon all tables, valuations, certificates, and reports furnished by any consultant or actuary; all opinions given by any legal counsel selected or approved by the commission; and any advice of a qualified investment consultant. The commission shall be fully protected with respect to any action taken or suffered by the commission in good faith in reliance upon the advice or opinion of any such consultant, actuary, legal counsel, or investment consultant, and all actions so taken or suffered shall be conclusive upon each of them and upon all members or other persons interested in the system.

The commission shall have no power in any way to modify, alter, add to or subtract from any provision of this Act.

The pension commission shall be authorized and empowered to do all things and to take all actions necessary to meet all requirements of Section 218 (d) of the Social Security Act in order to effect retroactive coverage to January 1, 1956 for members of Division B who voluntarily elect to become covered by the Social Security Act and to transfer their coverage to Division A as provided in Article 3. The employer shall be authorized and empowered to negotiate any agreement with the State of Tennessee to accomplish such retroactive coverage; and the employer shall act in accordance with the directions of the commission in all matters relating to any agreements or modifications of any existing agreement which may be necessary to accomplish such retroactive coverage and which shall be executed by the employer on or before December 31, 1961. The commission shall be authorized and empowered to pay from the fund to the Social Security Administration the amount of any retroactive Social Security taxes as required by such agreement or agreements or modifications of any existing agreements.

The commission shall determine whether any employee meets the health examination requirements an employee must meet to become eligible for participation as provided in Section 2.03 or Section 2.05; and the commission shall determine all questions relating to the disability of any member applying for disability benefits under this Act. The commission shall employ from time to time, upon such terms and conditions as the commission may prescribe, one or more physicians who are not members of the system. The duties of such physician or physicians shall be to perform all medical examinations required by the commission, and to investigate all health and medical statements and certificates made by or on behalf of any employee applying for membership in the system or any member applying for or receiving disability benefits under this Act. The conclusions and recommendations on all matters submitted to such physician or physicians shall be reported in writing to the commission; provided, however, the commission shall not be bound by the conclusions and recommendations of such physician or physicians.

The pension commission shall be the trustee of the fund and shall have the power to invest and reinvest the principal and income of the fund, subject to the limitation that no investment shall be made except in securities and properties which at the time of making the investment are permitted by statute for the investment of funds by fiduciaries in the State of Tennessee. Subject to such limitations, the pension commission shall have full power to hold, purchase, sell, assign, transfer, or dispose of any assets of the fund.

Sec. 1.05. Personal interest of members of pension commission prohibited.

No member of the pension commission shall have any interest, direct or indirect, in the gains or profits of any investment made by the commission, except to the extent any member of the commission may be a member, survivor, or beneficiary of the system. No member of the commission shall receive, directly or indirectly, any pay or emolument for his services except as expressly provided in this Act. No member of the commission shall, directly or indirectly, for himself or as an agent, use in any manner the funds or deposits of the system, except to make such payments therefrom as are authorized by the commission, nor shall any member of the commission become an endorser or surety or in any manner or obligor for monies loaned by or borrowed from the system.

Sec. 1.06. Payments from fund.

The Davidson County Trustee shall be the custodian of the Fund. All registered securities of the Fund shall be registered in the name of the Davidson County Pension System; every change in registration, by reason of sale or assignment of such securities, shall be accomplished by the authorized signatures of members of the pension commission; and such securities shall be delivered by the Davidson County Trustee when directed in writing by the pension commission. All payments from the Fund shall be made on authority of the pension committee. For the purpose of making payments from the Fund, there may be kept available sufficient cash on deposit to the credit of the system in one (1) or more banks or trust companies located in Davidson County, organized under the laws of Tennessee or of the United States, and qualified as State depositories.

Sec. 1.07. Members' contribution account.

The members' contribution account shall be the account to which all members' contributions, as provided in this Act, shall be credited. From this account shall be paid any refund of contributions to a member terminating his service other than by retirement or death; and at the time a member retires or dies, his account balance shall be transferred to the retirement allowance account as defined in Section 1.08. Contributions by a member shall be deducted from his earnings for each payroll period subsequent to his becoming a member; and the amount so deducted shall be deposited in the Fund by the Davidson County Trustee and credited to the member's individual account of the members' contribution account. Contributions by members provided for in this Act shall be made notwithstanding that the minimum compensation provided by law for any member shall be reduced thereby. Every member shall be deemed to consent and agree to the payroll deductions made as provided in this Act; and payment of salaries or wages, less such deductions, shall be a full and complete discharge of all claims for services rendered by such members during the period covered by such payment.

In the case of a member of Division B who voluntarily elects to transfer his membership to Division A in accordance with the provisions of this Act, an amount equal to the required taxes under the Federal Insurance Contributions Act payable by such member of Division B for the period beginning January 1, 1956, and ending on the date coverage under the Social Security Act is extended to such member of Division B shall be deducted from amounts credited to his individual account of the members' contribution account.

Sec. 1.08. Retirement allowance account.

The retirement allowance account shall be the account in which all employer contributions, all amounts transferred from the members' contributions account, and all income from the invested assets of the fund shall be accumulated. From this account shall be paid the expenses of the pension commission in administering the system, death benefits, retirement benefits, and any other benefits payable after a member's retirement or death.

Sec. 1.09. Employer contributions.

The employer shall contribute monthly to the fund an amount equal to a certain percentage of the monthly earnings of members of Division A and members of Division B, based on a rate to be known as the employer contribution rate. The employer contribution rate applicable for any fiscal year shall be established by the pension commission prior to the commencement of such fiscal year on the basis of an actuarial valuation of the system made as of a valuation date within three (3) years of the beginning of such fiscal year. The employer contribution rate shall be determined actuarially based on a normal contribution rate and five percent (5%) of unfunded past service liabilities as of the date an actuarial valuation is made.

The normal contribution rate and unfunded past service liabilities shall be determined by a qualified actuary on the basis of such actuarial assumptions last adopted by the pension commission prior to said actuarial valuation date and on the basis of accepted actuarial methods. Based on the employer contribution rate, the pension commission shall determine its best estimate of the contribution required by the employer for the fiscal year then beginning and of estimated expenses of the pension commission. Such estimated amounts shall be included in the budget of the employer for such fiscal year, and the

employer shall make actual employer contributions to the fund each month based on the employer contribution rate applicable to earnings of the members in the month.

Sec. 1.10. Correction of errors.

If any change in records or error results in any member, survivor, contingent annuitant, or Beneficiary receiving from the system more or less than he would have been entitled to receive had the records been correct or had the error not been made, the commission, upon discovery of such error, shall correct the error by adjusting, as far as practicable, the payments in such a manner that the benefits to which the member, survivor, contingent annuitant, or beneficiary was correctly entitled shall be paid. If any change in records or error results in any member or the employer contributing to the fund more or less than should have been contributed had the records been correct or had the error not been made, the commission, upon discovery of such error, shall correct the error by adjusting, as far as practicable, the contribution payable by the member or the employer so that the total contributions paid will equal the amount payable had the records been correct or had the error not been made.

Sec. 1.11. Retirement benefits exempt from taxation, execution or assignment.

All retirement benefits and other benefits accrued or accruing to any person under the provisions of this Act, and the contributions by members as well as the employer, and other assets of the fund are hereby exempted from any state, county or municipal tax and shall not be subject to execution, attachment, garnishment, or any other process whatsoever, nor shall any assignment thereof be enforceable in any court.

Sec. 1.12. False statements.

Any person who shall knowingly make any false statement, or shall falsify or permit to be falsified any record or records of the system, in any attempt to defraud the system shall be guilty of a misdemeanor and upon conviction thereof shall be punished accordingly.

Sec. 1.13. Headings.

The headings and sub-headings of this Act have been inserted for convenience of reference only and are to be ignored in any construction of the provisions of this Act.

Sec. 1.14. Construction.

In the construction of this Act, the masculine shall include the feminine and the singular the plural in all cases where such meanings would be appropriate.

Sec. 1.15. Legally incompetent.

If any member, retired member, survivor, beneficiary or contingent annuitant is a minor, or is in the judgment of the pension commission otherwise legally incapable of personally receiving and giving a valid receipt for any payment due him hereunder, the commission may, unless and until claim shall have been made by a duly appointed guardian or conservator of such person, direct that such payment or any part thereof be made to such person's spouse, child, parent, brother, or sister, deemed by the commission to have incurred expenses for or assumed responsibility for the expenses of such person. Any payment so made shall be a complete discharge of any liability under the system for such payment.

Sec. 1.16. Amendment or repeal.

An amendment or repeal of any provision of this Act shall be made only following an actuarial determination of its effect on the soundness of the system's design as well as its effect on the cost of the system, and disclosure of such information to all interested persons. No amendment or repeal of a provision of this Act shall affect in any way the benefits then being paid to members, survivors, contingent annuitants or beneficiaries or benefits based on service completed prior to the date of such amendment or repeal, except as provided in Section 1.17; provided, however, that in determining such accrued benefits payable to members of Division A, the average base earnings and the average excess earnings shall be determined as of the date of the amendment or repeal, as the case may be, and in determining such accrued benefits payable to members of Division B, the credited earnings shall be determined as of the date of the amendment or repeal, as the case may be.

Sec. 1.17. Repeal of entire Act.

In event of repeal of this Act in its entirety including amendatory Acts thereto, the pension commission shall prepare a list of all members, retired members, survivors, contingent annuitants and beneficiaries, showing for each, as of the date of such repeal, the following:

(1) For each retired member, survivor, beneficiary or contingent annuitant receiving benefits, the amount and terms of payment of such benefits.

(2) For each member of Division A entitled to a deferred benefit as provided in Section 2.16 or Section 2.25, the amount and terms of payment of such benefit; and for each terminated member of Division B entitled to a deferred benefit as provided in Section 3.15(c)(2), the amount and terms of payment of such benefit.

(3) For each member of Division B, the amount of his accrued benefit computed as of the date of such repeal in the same manner as set forth in Section 3.10; and for

each member of Division A, the amount of his accrued benefit computed as of the date of repeal in the same manner as set forth in Section 2.12.

The terms of payment of such benefit for a member of Division A shall be the same as those of the deferred benefit described in Section 2.16 or Section 2.25, unless modified by a previous election of an option as provided in Section 2.26.

The benefits shown on the above list will then be separated into 'priority classes' as follows:

Priority Class A: Benefits for members who have reached their sixty-fifth birthdays, benefits for retired members who have reached their sixty-fifth birthdays, and benefits for survivors, beneficiaries and contingent annuitants of all deceased members or retired members.

Priority Class B: Benefits for members, retired members who are receiving benefits, terminated members of Division B entitled to a deferred benefit as provided in Section 3.15(c)(2), and members of Division A entitled to a deferred benefit as provided in Section 2.16 or Section 2.25; provided, however, that they have reached their fifty-fifth but not their sixty-fifth birthdays and have completed twenty (20) years of credited service.

Priority Class C: Benefit for all members, terminated members and retired members.

The commission will then arrange for the liquidation of all assets held in the fund maintained in connection with the system and prepare a statement of the liquidated value of such assets. The commission will then arrange for the application of the assets of the fund to purchase annuities from an insurance company or companies, to provide in full, if such assets are sufficient to do so, the benefits in Priority Class A. If such assets are not sufficient to purchase one hundred percent (100%) of benefits in Priority Class A, they shall be applied in full to purchase such uniform percentage as can be purchased. If the assets of the Fund are more than sufficient to purchase one hundred percent (100%) of the benefits in Priority Class A, the remainder shall be applied in the same manner to purchase all or a uniform percentage of benefits in Priority Class B. If the remaining assets are more than sufficient to purchase one hundred percent (100%) of the benefits in Priority Class B, the remainder shall be applied in the same manner to purchase all or a uniform percentage of benefits in Priority Class C. If the remaining assets are more than sufficient to purchase one hundred percent (100%) of the benefits in Priority Class C, the remainder shall revert to the employer. Upon completion of the steps specified above, this Act shall be considered repealed, and no member, retired member, survivor, beneficiary or contingent annuitant shall have any further right or claim to benefits under this Act.

Sec. 1.18. Termination of system by default.

In the event the employer fails for four (4) consecutive fiscal years to contribute in accordance with the provisions of Section 1.09, the system shall automatically terminate and the provisions of Section 1.17 shall apply in the same manner as though the Act in its entirety had been repealed.

Sec. 1.19. Right of employment.

Nothing contained in this Act shall be deemed to give any member or employee the right to be retained in the employment of the employer or to interfere with the right of the employer to discharge any member or employee, regardless of the effect which such discharge would have upon him as a member.

ARTICLE 2. DIVISION A

Sec. 2.01. Introduction.

Article 2 shall apply only to Employees eligible to participate in Division A and to members of Division A as provided in Article 2. Article 2 shall not apply to employees who are members of Division B. Members of Division A shall be covered by the Social Security Act.

Sec. 2.02. Definitions.

When used in Article 2, and in Article 1, the following words and phrases shall have the meaning indicated unless otherwise defined or required by the context:

(a) *Prior service* shall mean all service, whether continuous or not, prior to the effective date; provided, however, that any person who becomes an employee after the effective date shall not be allowed credit for prior service.

(b) *Current service* shall mean all continuous, uninterrupted service after the effective date and prior to the date as of which current service is being determined; provided, however, current service shall not include the service of an employee after he has reached his seventieth birthday. Current Service shall not be deemed to be interrupted, but shall not include extended sick leave or leave of absence granted by the appointing officer of the employee and approved by the pension commission, or any service, voluntary or involuntary, in the Armed Forces of the United States, provided the employee is entitled to re-employment under the provisions of the Universal Military Training and Service Act and amendments thereto, or any law applicable to such re-employment, and provided further that the employee

shall apply for re-employment with the employer within the time specified by law and in the manner and under the conditions prescribed by law.

(c) *Credited service* shall mean the sum of prior service, if any, and current service. Credited service shall be expressed in years and a decimal fraction of a year based on completed calendar months.

(d) *Base earnings* shall mean that part of earnings in any calendar year which is subject to Social Security tax.

(e) *Excess earnings* shall mean that part of earnings in any calendar year which is not subject to Social Security tax.

(f) *Average* shall mean an arithmetic average determined for the full calendar years of credited service of a member of Division A commencing with the calendar year 1956 and ending with the calendar year preceding the date as of which such average is being determined, or based on such lesser number of full calendar years of credited service actually completed by a member of Division A; provided, however, that in no case shall such average be based on more than ten (10) full calendar years preceding the date as of which such average is being determined.

(g) *Average base earnings* shall mean the average of base earnings; provided, however, that in the case of delayed retirement, such average shall not be less than the average of base earnings determined as of the normal retirement date.

(h) *Average excess earnings* shall mean the average of excess earnings; provided, however, that in the case of delayed retirement, such average shall not be less than the average of excess earnings determined as of the normal retirement date.

(i) *Normal retirement date* shall mean the first day of the month next following the sixty-fifth birthday of a member of Division A.

(j) *Beneficiary* shall mean the person last designated in writing by a member of Division A in accordance with the provisions of Section 2.06 to receive benefits payable on the death of a member of Division A.

(k) *Contingent annuitant* shall mean the person last designated in writing by a member of Division A to receive benefits payable under option A or option B as provided in Section 2.27.

Sec. 2.03. Eligibility and participation of a person becoming an employee after the effective date.

Each person becoming an employee after the effective date shall, as a condition of employment, become a member of Division A as of the first day of the month next following completion of six (6) full calendar months of current service, provided he meets the minimum health requirements established by the pension commission. Any employee who does not meet such minimum health requirements shall become a member of Division A on the date the pension commission certifies in writing that he does meet such requirements; provided, however, that all service prior to such certification shall not be included as current service, notwithstanding anything in this Act to the contrary.

Sec. 2.04. Eligibility and participation of a member of Division B who transfers his membership to Division A.

Each employee who is a member of Division B and who voluntarily elects in writing to transfer his membership to Division A, in accordance with the provisions of Article 3 of this Act, shall thereafter be a member of Division A. A member of Division B who voluntarily elects to transfer his membership to Division A, in accordance with the provisions of Article 3 of this Act, shall cease to be a member of Division B and shall thereafter have no rights under Article 3 of this Act.

Sec. 2.05. Eligibility and participation of employees on the effective date who are not members of Division B.

Each employee on the effective date who is not then a member of Division B shall be eligible to become a member of Division A as of the first day of the month next following completion of six (6) full calendar months of credited service, or on the effective date, whichever is later, provided he meets the minimum health requirements established by the pension commission. Any Employee who does not meet such minimum health requirements shall become a member of Division A on the date the pension commission certifies in writing that he does meet such requirements; provided, however, that all credited service prior to such certification shall not be included as credited service, notwithstanding anything in this Act to the contrary.

An employee on the effective date who is not then a member of Division B shall deliver on or before September 15, 1961 written notice to the pension commission of his election to become a member of Division A. In the case of an employee on authorized leave of absence on the effective date, such written notice must be delivered to the pension commission within sixty (60) days of his return to active employment. If an employee does not deliver such written notice within the time limits prescribed in this section, he shall be deemed to have refused membership in Division A, and he shall forfeit his right to any credit for prior service if he subsequently

delivers such written notice, notwithstanding anything in this Act to the contrary. He may subsequently deliver such written notice to the pension commission, but he shall not have any right to credit for prior service and he shall pay into the fund all contributions he would have made from the effective date to the date he delivers such written notice to the pension commission.

Sec. 2.06. Beneficiary designation.

A member of Division A may designate any person as beneficiary to receive benefits provided by Article 2 and payable upon the death of the member of Division A. A change in such designation may be made at any time by the member of Division A, subject to the provisions of Section 2.26. Such designation or change in designation shall be submitted in writing to the pension commission in such form and manner as the commission may prescribe. No designation of beneficiary shall be effective unless it has been received by the pension commission prior to the date of death of the member of Division A. Upon any change in designation of beneficiary, the rights of all previously designated beneficiaries to receive any benefits provided by Article 2 shall cease.

Sec. 2.07. Termination of membership in Division A.

If a member of Division A terminates his membership in Division A, he shall thereafter forfeit all rights to any benefit or benefits provided by Division A arising from service completed prior to the date his membership is terminated. The membership of any member of Division A shall terminate upon:

(a) Withdrawal of his contributions at or any time after termination of employment, regardless of his length of credited service;

(b) Termination of employment, unless at such termination of employment he has completed fifteen (15) years of credited service and he does not withdraw his contributions;

(c) Retirement, except disability retirement followed by re-employment as an employee subject to Section 2.17, or early retirement, if a monthly deferred early retirement benefit was elected, followed by re-employment as an employee subject to Section 2.16;

(d) Death;

(e) Termination of employment at any time with prejudice, where 'prejudice' shall mean the termination of employment of a member of Division A as a result of his conviction in a court of competent jurisdiction of embezzlement or larceny of public funds or properties, or malfeasance in office, or shall mean the forcing of a member of Division A to make restitution of any funds or properties similarly taken by the member of Division A which resulted in his termination of employment.

Sec. 2.08. Prior service certificates.

As soon as practicable after the effective date, the pension commission shall determine the prior service of each member of Division A who was an employee on the effective date and shall issue to such member of Division A a certificate of his prior service. If the pension commission discovers that the prior service recorded on a certificate is incorrect, a corrected certificate shall be issued promptly which shall supersede any certificate previously issued. Copies of such certificates shall become a part of the permanent records maintained by the pension commission for the purpose of determining benefits payable to members of Division A or to their beneficiaries or contingent annuitants. In establishing such records, the pension commission may require, in its discretion, members of Division A, beneficiaries, contingent annuitants and other persons to submit affidavits as to any information and data which affect benefits payable to members of Division A or their beneficiaries or contingent annuitants. When a member of Division A terminates his membership in Division A as provided in Section 2.07, his certificate of prior service shall become void.

Sec. 2.09. Contributions rates of members of Division A.

Each employee who is a member of Division A shall contribute to the fund in accordance with the contribution rate or rates per calendar year which shall be (a) and (b), as follows:

(a) The contribution rate shall be three percent (3%) of base earnings;

(b) The contribution rate shall be six percent (6%) of excess earnings.

The amount of contribution payable in any payroll period by each member of Division A shall be computed, consistent with the provisions of this section to the extent administratively feasible, in such manner as determined by the pension commission, and shall be made by payroll deductions in accordance with the provisions of Section 1.07 of this Act.

Sec. 2.10. Application for benefits.

Before any benefit provided for in Article 2 can be paid, all conditions applicable to the payment of the benefit must be met, application for the benefit must be presented to the pension commission in such form and manner as the commission shall determine, and the payment of benefit must be approved by the pension

commission. If any retirement benefit provided for in Article 2 is less than twenty dollars ($20.00) per month, the pension commission in its discretion may pay the actuarially equivalent value of such benefit in one lump sum, or in such other manner as the commission may determine.

Sec. 2.11. Normal retirement—Conditions.

Each member of Division A shall be eligible to retire on his normal retirement date and to receive a benefit as provided in Section 2.12.

Sec. 2.12. Normal retirement benefit.

A member of Division A shall, upon retirement on his normal retirement date, receive a monthly normal retirement benefit which shall be payable on his normal retirement date and on the first day of each month thereafter during his lifetime, computed as of his normal retirement date as one-twelfth (1/12) of the product of (a) and (b):

(a) Credited service.

(b) Seventy-five one-hundredths percent (0.75%) of average base earnings, plus one and fifty one-hundredths percent (1.50%) of average excess earnings.

Notwithstanding anything in this Act to the contrary, no amendment of this Act shall have the effect of changing either the ratio of the contribution rate applicable to base earnings (as provided in Section 2.09) and the benefit rate applicable to average base earnings (as provided in this Section), or the ratio of the contribution rate applicable to excess earnings (as provided in Section 2.09) and the benefit rate applicable to average excess earnings (as provided in this section).

Sec. 2.13. Delayed retirement—Conditions.

A member of Division A may remain in the active employment of the employer beyond his normal retirement date, if requested in writing to do so by the head of his department and with the written approval of the pension commission, and shall be eligible to retire on his delayed retirement date, which shall be the first day of any month following the effective date and his normal retirement date, and to receive a benefit as provided in Section 2.14. In no case shall a member of Division A, other than an official of the employer who is elected by popular vote, or by the Davidson County Quarterly Court, remain in the active employment of the Employer beyond his seventy-fifth birthday; provided, however, that such member of Division A who has reached his seventy-fifth birthday on the effective date shall not be required to retire for a period of three (3) years after the effective date.

Sec. 2.14. Delayed retirement benefit.

A member of Division A shall, upon retirement on his delayed retirement date, receive a monthly delayed retirement benefit, which shall be payable on his delayed retirement date and on the first day of each month thereafter during his lifetime, computed in the same manner set forth in Section 2.12, except that such computation shall be made as of his delayed retirement date.

Sec. 2.15. Early retirement—Conditions.

A member of Division A who has reached his fifty-fifth birthday and completed twenty (20) years of credited service shall be eligible to retire on his early retirement date, which shall be the first day of any month thereafter but prior to his normal retirement date, and to receive a benefit as provided in Section 2.16.

Sec. 2.16. Early retirement benefit.

A member of Division A shall, upon retirement on his early retirement date, receive either (a) or (b) as follows:

(a) a monthly deferred early retirement benefit, which shall be payable on his normal retirement date, provided he is then living, and on the first day of each month thereafter during his lifetime, computed in the same manner set forth in Section 2.12, except that such computation shall be made as of his early retirement date; provided, however, that if the date of death of such member of Division A occurs after his termination of employment and prior to his normal retirement date, his beneficiary shall receive a refund of the contributions standing to the credit of such deceased member of Division A; or

(b) an immediate monthly early retirement benefit, which shall be payable on his early retirement date and on the first day of each month thereafter during his lifetime, the amount of which shall be the amount of benefit provided in subparagraph (a) of this section, but reduced by five-twelfths percent (5/12%) thereof for each full month in the period of time between his early retirement date and his normal retirement date.

If a member of Division A who has elected a monthly deferred early retirement benefit as provided in subparagraph (a) of this section is re-employed by the employer, his credited service shall not be deemed to have been interrupted, but shall not include any time during which he was not an employee.

Sec. 2.17. Definition of disability—Requirements.

Disability shall mean a physical or mental condition of a member of Division A which has persisted for six (6) continuous months, which is likely to be permanent, and

which has rendered him incapable of performing work which would provide income at a rate of twenty-five percent (25%) or more of his regular rate of earnings at the time such disability began. Loss by severance of both hands at or above the wrists, or both feet at or above the ankles, or one hand above the wrist and one foot at or above the ankle, or the complete irrecoverable loss of the sight of both eyes, shall conclusively determine disability, notwithstanding the extent of the income of the member of Division A after the date of such loss.

Notwithstanding any provision of this section to the contrary, disability as defined in this section shall not include a physical or mental condition which results directly or indirectly from:

(a) Injury intentionally self-inflicted;

(b) Injury or disease resulting from military service; or

(c) Injury or disease suffered or contracted prior to the last date hired as an employee by the employer.

The pension commission shall have exclusive authority to determine the existence of disability. The commission, in its sole discretion, may secure such medical and other evidence as it deems necessary and appropriate. once each calendar year, the pension commission may require any retired member who is receiving a disability benefit and who has not reached his normal retirement date to undergo a medical examination by a physician or physicians designated by the pension commission; and such examination shall be made at the place of residence of such retired member or at any other place the pension commission designates. If the pension commission determines from such medical examination or any other evidence that the disability of the retired member has ceased, his disability benefit shall be discontinued as of the date of such determination. If a retired member refuses to submit to such medical examination, his disability benefit shall be discontinued until he shall actually undergo such medical examination; and if he fails to undergo such medical examination for one year from the date the pension commission requires such medical examination, his disability benefit shall be discontinued permanently. Prior to July 1 in each calendar year, each retired member who received a disability benefit in the preceding calendar year and who has not reached his normal retirement date shall submit proof satisfactory to the pension commission of the amount of his income earned in such preceding calendar year and derived from performing work. If the pension commission determines that such income is twenty-five percent (25%) or more of his regular rate of annual earnings at the time such disability began, his disability benefit shall be discontinued as of the date of such determination; provided, however, that if the retired member reapplies for disability benefits and the commission determines that disability exists, payment of his disability benefit shall resume as of the date of such determination. If a retired member refuses or fails to submit such proof to the pension commission prior to July 1, in each calendar year, his disability benefit shall be discontinued after such date and until he actually submits such proof; and if he fails to submit such proof within one year of such date, his disability benefit shall be discontinued permanently. If the disability benefit of a retired member is discontinued permanently prior to his normal retirement date and he is re-employed by the employer within six (6) months following the date his disability ceases, his credited service shall not be deemed to have been interrupted, but shall not include any time during which he was not an employee.

Sec. 2.18. Disability not in line of duty—Conditions.

A member of Division A who is an employee, who has completed fifteen (15) years of credited service, and who has become disabled as defined in Section 2.17 shall be eligible to retire from the active employment of the employer on his disability retirement date, which shall be the first day of the month following the determination by the pension commission that he is disabled, and to receive a disability benefit as provided in Section 2.19.

Sec. 2.19. Disability not in line of duty—Benefit.

A member of Division A shall receive a monthly disability retirement benefit, which shall be payable on his disability retirement date, as defined in Section 2.18, and on the first day of each month thereafter during the period of his disability, as defined in Section 2.17, and during his lifetime. Such monthly disability retirement benefit shall be computed in the same manner set forth in Section 2.12 except that such computation shall be made as of his disability retirement date and the amount of such benefit shall not be less than fifty dollars ($50.00) per month. A member of Division A shall also receive, upon retirement on his disability retirement date, as defined in Section 2.18, a lump sum benefit equal to six (6) months of his monthly disability retirement benefits.

Sec. 2.20. Disability in line of duty—Conditions.

A member of Division A who is an employee and who becomes disabled, as defined in Section 2.17, as a direct result of any act or thing done which, as determined in the discretion of the pension commission, was required of him in the performance of his duty as an employee shall be eligible to retire from the active employment of

the employer on his disability retirement date, which shall be the first day of the month following the determination by the pension commission that he is disabled, and to receive a disability benefit as provided in Section 2.21.

Sec. 2.21. Disability in line of duty—Benefit.

A member of Division A shall receive a monthly disability retirement benefit, which shall be payable on his disability retirement date, as defined in Section 2.20, and on the first day of each month thereafter during the period of his disability, as defined in Section 2.17, and during his lifetime. Such monthly disability retirement benefit shall be either (a) or (b) as follows, whichever is the larger amount:

(a) A monthly benefit computed in the same manner set forth in Section 2.12 except that such computation shall be made as of his disability retirement date and the amount of such benefit shall not be less than fifty dollars ($50.00) per month; or

(b) A monthly benefit equal to one-twelfth ($^1/_{12}$) of the sum of fifty percent (50%) of average base earnings and fifty percent (50%) of average excess earnings determined as of his disability retirement date; provided, however, that such sum shall be reduced by the primary insurance amount being paid to such member of Division A under the Social Security Act.

A member of Division A who is eligible to receive a disability benefit in accordance with the provisions of subparagraph (b) of this section shall submit proof satisfactory to the pension commission that he has filed with the Social Security Administration an application for disability benefits in accordance with the provisions of the Social Security Act. The pension commission may require from time to time a member of Division A who is eligible to receive a disability benefit in accordance with the provisions of subparagraph (b) of this section to file an application for disability benefits with the Social Security Administration. If such member of Division A fails or refuses to file such application, the pension commission shall estimate what would have been his primary insurance amount if a valid application for disability benefits had been filed, and his monthly disability benefit payable as provided in subparagraph (b) of this section shall be reduced by such estimated primary insurance amount.

Sec. 2.22. Death benefits before retirement.

If the date of death of a member of Division A occurs prior to the commencement of any benefits provided by this Act and prior to the first day of the month following his fifty-fifth birthday and his completion of twenty (20) years of credited service, his beneficiary shall receive a lump sum payment of the member's contributions standing to the credit of the deceased member of Division A. If the date of death of a member of Division A, who was in the active employment of the Employer on such date, occurs prior to the commencement of any benefits provided by this Act, but subsequent to the first day of the month following his fifty-fifth birthday and his completion of twenty (20) years of credited service, his then living beneficiary shall receive a monthly survivor benefit, which shall be payable on the first day of the month following the date of death of the member of Division A and during the lifetime of such beneficiary. Such monthly survivor benefit shall be computed as though the member of Division A had retired on the day before his date of death and had elected option B as provided in Section 2.27; provided, however, that if no beneficiary is living on the date of death of the member of Division A, a refund of his contributions shall be payable to his estate. In lieu of all other benefits payable to a beneficiary upon the death of a member of Division A, the beneficiary may elect to receive a lump sum payment of the member's contributions standing to the credit of the deceased member of Division A.

Sec. 2.23. Death benefits after retirement.

No death benefits shall be payable in the case of a retired member of Division A whose date of death occurs after retirement, unless the deceased retired member of Division A elected an optional form of benefit specifically provides for a death benefit.

Sec. 2.24. Termination of employment before fifteen (15) years of credited service.

Any member of Division A who has completed less than fifteen (15) years of credited service at the time of his termination of employment shall receive, in lieu of all other benefits he is eligible to receive, a refund of the member's contributions standing to his credit.

Sec. 2.25. Termination of employment after fifteen (15) years of credited service.

A member of Division A who has completed at least fifteen (15) years of credited service at the time of his termination of employment may elect to receive, in lieu of all other benefits he is eligible to receive, either (a) or (b) as follows:

(a) A refund of the member's contributions standing to his credit; or

(b) A monthly deferred vested retirement benefit, which shall be payable on his normal retirement date, provided he is then living, and on the first day of each month thereafter during his lifetime, computed in the same manner set forth in Section 2.12, except that such

computation shall be made as of his date of termination of employment; provided, however, that if the date of death of such Member of Division A occurs prior to his Normal Retirement Date, his Beneficiary shall receive a refund of the Member's contributions standing to the credit of such deceased Member of Division A.

Notwithstanding anything in this section to the contrary, if the termination of employment of a member of Division A is with prejudice, as defined in Section 2.07(e), he shall not be entitled to elect a monthly deferred vested retirement benefit in accordance with subparagraph (b) of this section. If a member of Division A who has elected a monthly deferred vested retirement benefit as provided in subparagraph (b) of this section is re-employed by the employer, his credited service shall not be deemed to have been interrupted, but shall not include any time during which he was not an employee.

Sec. 2.26. Election of optional retirement benefits.

A member of Division A entitled to a retirement benefit, other than the disability benefit as provided in Section 2.19 or Section 2.21, may elect ninety (90) days or more prior to his retirement date to have a retirement benefit payable under one of the options set forth in Section 2.27 in lieu of all the benefits he may otherwise be entitled to receive. The benefit shall be paid in accordance with the terms of the option elected. A member of Division A may revoke his election of an option, and he may make a new election at any time at least ninety (90) days prior to retirement; provided, however, that if his beneficiary or contingent annuitant, as the case may be, dies prior to retirement, he may elect a new option at any time prior to retirement. Election of any option shall be subject to the approval of the pension commission and shall be made by the member of Division A in writing and in such manner and form as the pension commission may prescribe. The beneficiary or contingent annuitant last designated by the member of Division A prior to the date he delivers written application for an option to the pension commission shall be the beneficiary or contingent annuitant, as the case may be, to receive any benefits payable after his death. The election of option A or option B by a member of Division A shall be null and void if the member of Division A or his contingent annuitant, as the case may be, dies before benefits commence.

Sec. 2.27. Description of options.

The amount of any optional retirement benefit set forth in this section shall be based on option rates adopted from time to time by the pension commission and shall be actuarially equivalent in value to the benefit that would otherwise be payable to a retired member; provided, however, that an optional retirement benefit in lieu of the delayed retirement benefit as provided in Section 2.14 shall not be less than if based on the option rate that would have been applicable had retirement occurred at his normal retirement date.

Option A: *Joint and Survivor Option:* a decreased retirement benefit payable to the retired member for life which shall continue after his death to the surviving contingent annuitant for life in the same amount as that payable to the retired member.

Option B: *Modified Joint and Survivor Option:* a decreased retirement benefit payable to the retired member for life which shall continue after his death to the surviving contingent annuitant for life in the amount of fifty percent (50%) of the amount that was payable to the retired member.

Option C: *Social Security Option:* an increased retirement benefit payable to the retired member during his lifetime until his normal retirement date and a reduced retirement benefit payable thereafter for life in order to have a more level retirement income when such reduced retirement benefit is added to his primary insurance amount payable under the Social Security Act. The optional benefit shall be based on the retired member's estimated primary insurance amount payable under the Social Security Act as such Act exists on his early retirement date.

Option D: *120 Payments Certain and Life Option:* a decreased retirement benefit payable for life with the first 120 payments guaranteed. Any guaranteed payments due after the death of the retired member shall be payable to his beneficiary.

Sec. 2.28. Coverage by Social Security Act.

All members of Division A shall be covered by the Social Security Act. Any member of Division B who desires to transfer his coverage from Division B to Division A must do so by written notice of his election delivered to the pension commission prior to September 15, 1961. Each member of Division B who elects to transfer his coverage from Division B to Division A shall, as a condition of such transfer, contribute retroactive Social Security taxes as provided in Section 1.07 of this Act, contribute Social Security taxes from the effective date, and make contributions to the fund as provided in Section 2.09.

ARTICLE 3. DIVISION B

Sec. 3.01. Introduction.

This article shall apply only to employees eligible to participate in Division B and to Members of Division B as provided herein. This article shall not apply to employees who are members of Division A. Members of Division B shall not be covered by the Social Security Act.

Sec. 3.02. Definitions.

When used in this Article 3 and in Article 1, the following words and phrases shall have the meaning indicated unless otherwise defined or required by the context:

(a) *Prior service* shall mean all service, whether continuous or not, prior to the effective date; provided, however, that prior service shall include all years and completed calendar months prior to the effective date during which an employee was a member of the Davidson County Teachers' Retirement Plan. Prior service shall include any service in the Armed Forces of the United States during World War II, provided the employee was employed by the employer immediately prior to entering such service.

(b) *Current service* shall mean all continuous, uninterrupted service after the effective date and prior to the date as of which current service is being determined. Current service shall not be deemed to be interrupted, but shall not include extended sick leave or leave of absence granted by the appointing officer of the employee and approved by the pension commission, or any service, voluntary or involuntary, in the Armed Forces of the United States, provided the employee is entitled to re-employment under the provisions of the Universal Military Training and Service Act and amendments thereto, or any law applicable to such re-employment, and provided further that the Employee shall apply for re-employment with the employer within the time specified by law and in the manner and under the conditions prescribed by law.

(c) *Credited service* shall mean the sum of prior service, if any, and current service. Credited service shall be expressed in years and a decimal fraction of a year based on completed calendar months.

(d) *Credited earnings* shall mean the highest earnings in any full calendar year of credited service in which the employee contributed to this fund or the Davidson County Employees' Pension and Insurance Fund, as it existed prior to the effective date of this Act.

(e) *Dependent child* shall mean a child of a member or retired member of Division B who is a natural born or adopted child and who has not reached his sixteenth birthday, including a natural born child of a member or retired member of Division B who is born within ten (10) months after the date of death of the member or retired member of Division B.

(f) *Dependent mother* shall mean the natural mother or the stepmother of a member or retired member of Division B who received more than one-half (1/2) of her support from the member or retired member of Division B for the full calendar year next preceding the date of death of the member or retired member of Division B; provided, however, that if such woman remarries after the date of death of the member of Division B, she shall cease, for purposes of Article 3, to be the dependent mother of a deceased member or retired member of Division B.

(g) *Widow* shall mean the woman to whom a deceased retired member was married on his date of retirement and for five (5) full years prior to his date of retirement, or the woman to whom a deceased member of Division B was married on his date of death and for five (5) full years prior to his date of death; provided, however, that if such woman remarries, she shall cease, for the purposes of this Article 3, to be the widow of a deceased member or retired member of Division B.

(h) *Survivor* shall mean the widow, or the dependent child, or the dependent mother of a deceased member or retired member of Division B who is eligible to receive any benefits payable upon the death of the member or retired member of Division B as provided in this Article 3.

(i) *Normal retirement date* shall mean the first day of the month next following the sixtieth birthday of a member of Division B and the completion of twenty-four (24) years of credited service, or the completion of thirty (30) years of credited service by a member of Division B, whichever is the earlier date.

Sec. 3.03. Eligibility and participation.

Each employee, including any employee who was on authorized leave of absence from the employer as of the effective date, who was covered by the Davidson County Employees' Pension and Insurance Fund as of June 30, 1961 shall become a member of Division B on the effective date. Each employee who was not covered by the Davidson County Employees' Pension and Insurance Fund as of June 30, 1961 shall not be eligible to become a member of Division B. Each person who becomes an employee on or after the effective date shall not be eligible to become a member of Division B.

Sec. 3.04. Transfer of membership to Division A.

Such employee who is a member of Division B as of the effective date may elect voluntarily to transfer his membership to Division A, subject to written application received by the pension commission on or before September 15, 1961. Following the receipt by the pension commission of such application, he shall become a member of Division A as of the effective date; provided, however, that he shall not be eligible to receive any benefit provided by Division A unless and until coverage by the Social Security Act is effective. If a member of Division B who transfers his membership to Division A retires, dies, or terminates his employment prior to the date coverage by the Social Security Act is effective, he shall be eligible to receive benefits provided by Division B, and he shall not be eligible to receive any benefit provided by Division A. After the date Social Security coverage is effective, he shall have no right thereafter to any benefit provided by Division B.

Sec. 3.05. Termination of membership in Division B.

If a member of Division B terminates his membership in Division B, he shall not be eligible thereafter to become a member of Division B. The membership of any member of Division B shall terminate upon:

(a) Termination of employment;

(b) Retirement, except disability retirement followed by re-employment as an employee subject to Section 3.11 and Section 3.13;

(c) Death;

(d) Termination of employment at any time with prejudice, where 'prejudice' shall mean the termination of employment of a member of Division B as a result of his conviction in a court of competent jurisdiction of embezzlement or larceny of public funds or properties, or malfeasance in office, or shall mean the forcing of a member of Division B to make restitution of any funds or properties similarly taken by the member of Division B which resulted in his termination of employment.

Sec. 3.06. Prior service certificates.

As soon as practicable after the effective date, the pension commission shall determine the prior service of each member of Division B who was an Employee on the effective date and shall issue to such member of Division B a certificate of his prior service. If the pension commission discovers that the prior service recorded on a certificate is incorrect, a corrected certificate shall be issued promptly which shall supersede any certificate previously issued. Copies of such certificates shall become a part of the permanent records maintained by the pension commission for the purpose of determining benefits payable to members of Division B or to their survivors. In establishing such records, the pension commission may require, in its discretion, members of Division B, survivors and other persons to submit affidavits as to any information and data which affect benefits payable to members of Division B and their survivors. When a member of Division B terminates his membership in Division B as provided in Section 3.05, his certificate of prior service shall become void.

Sec. 3.07. Contribution rates of members and retired members of Division B.

Each employee who is a member of Division B shall contribute to the fund in accordance with the applicable contribution rate per calendar year which shall be (a) or (b) or (c), as follows:

(a) The contribution rate for each male member of Division B shall be five percent (5%) of his earnings in each calendar year during which he is a member of Division B; or

(b) The contribution rate for each female member of Division B who has elected to have benefits payable to her survivor in accordance with the provisions of this Article 3 shall be five percent (5%) of her earnings in each calendar year during which she is a member of Division B; or

(c) The contribution rate for each female member of Division B who has not elected to have benefits payable to her survivor in accordance with the provisions of this Article 3 shall be two and one-half percent (2½%) of her earnings in each calendar year during which she is a member of Division B.

The amount of contribution payable in any payroll period by each member of Division B shall be computed, consistent with the provisions of this section to the extent administratively feasible, in such manner as determined by the pension commission, and shall be made by payroll deductions in accordance with the provisions of Section 1.07 of this Act.

If a member of Division B has not contributed to the fund as of his retirement date for the required number of years in accordance with the applicable provisions of this article, he shall continue to contribute each month to the fund, until he has contributed for such required number of years, in accordance with the applicable contribution rate per month which shall be (d) or (e) or (f), as follows:

(d) The contribution rate for each male retired member shall be one-twelfth (1/12) of five percent (5%) of his credited earnings; or

(e) The contribution rate for each female retired member who has elected to have benefits payable to her survivor in accordance with the provisions of this Article 3 shall be one-twelfth (1/12) of five percent (5%) of her credited earnings; or

(f) The contribution rate for each female retired member who has not elected to have benefits payable to her Survivor in accordance with the provisions of this Article 3 shall be one-twelfth (1/12) of two and one-half percent (2½%) of her credited earnings.

The amount of contribution, if any, payable by a retired member shall be collected by deductions from retirement benefits payable to him or by contributions payable by the retired member on or before the first day of each month. The pension commission in its discretion may determine, with or without uniformity, the method of collecting contributions to the fund by retired members, and the commission shall have the right to change such method at any time.

The contribution rates of members and retired members of Division B set forth in this Section shall be effective as of the effective date. The amount of contribution payable, in accordance with the provisions of the Davidson County Employees' Pension and Insurance Fund as it existed prior to the effective date, by each retired member who retired prior to the effective date shall not be increased or decreased by the provisions of this Act; but such amount shall be payable to this fund for the same period of time required by the Davidson County Employees' Pension and Insurance Fund as it existed prior to the effective date. The amount of contribution by a member of Division B which was payable prior to the effective date, in accordance with the provisions of the Davidson County Employees' Pension and Insurance Fund as it existed prior to the Effective Date, shall not be increased or decreased by the provisions of this Act; provided, however, that members and retired members of Division B who retire on or after the effective date shall contribute to this fund on and after the effective date in accordance with the contribution rates set forth in this section.

Sec. 3.08. Application for benefits.

Before any benefit provided for in this Article 3 can be paid, all conditions applicable to the payment of the benefit must be met, application for the benefit must be presented to the pension commission in such form and manner as the commission shall determine, and the payment of benefit must be approved by the pension commission. If any retirement benefit provided for in this Article 3 is less than twenty dollars ($20.00) per month, the pension commission in its discretion may pay the actuarially equivalent value of such benefit in one lump sum, or in such other manner as the commission may determine.

Sec. 3.09. Normal retirement—Conditions.

Each member of Division B shall be eligible to retire on his normal retirement date and to receive a benefit as provided in Section 3.10.

Sec. 3.10. Normal retirement benefit.

A member of Division B shall, upon retirement on his normal retirement date, receive a monthly normal retirement benefit which shall be payable on his normal retirement date and on the first day of each month thereafter during his lifetime and which shall be equal to one-twelfth (1/12) of fifty percent (50%) of his credited earnings; provided, however, that if the member of Division B has not contributed to the fund as of his normal retirement date for twenty-four (24) full years, he shall contribute to the fund in accordance with the applicable contribution rate of a retired member as set forth in Section 3.07, and he shall contribute such amount during his lifetime or until he has made contributions to the fund before and after retirement for twenty-four (24) full years, whichever is the shorter period of time.

Sec. 3.11. Disability in line of duty—Conditions.

Disability in line of duty shall mean a bodily injury or injuries which was received by accidental means, which resulted directly and exclusively of all other causes during the time a member of Division B was engaged in the regular duties of his employment, which is likely to be permanent, and which has rendered him incapable of performing the duties of his employment. The pension commission shall have exclusive authority to determine the existence of disability in line of duty.

The pension commission, in its sole discretion, may secure medical and other evidence as it deems necessary and appropriate. Once each calendar year, the pension commission may require any retired member who is receiving a disability benefit because of disability in line of duty and who has not reached his sixtieth birthday to undergo a medical examination by a physician or physicians designated by the pension commission, and such examination shall be made at the place of residence of such retired member or at any other place the pension commission designates. If the pension commission determines from such medical examination or any other evidence that the disability of the retired member has ceased or that he is able to resume employment with the employer at an annual earnings rate equal to or greater than that in effect at the time disability was initially

determined, his disability benefit shall be discontinued as of the date of such determination. If a retired member refuses to submit to such medical examination, his disability benefit shall be discontinued until he shall actually undergo such medical examination; and if he fails to undergo such medical examination for one year from the date the pension commission requires such medical examination, his disability benefit shall be discontinued permanently.

If the disability benefit of a retired member is discontinued permanently prior to his sixteenth birthday and he is re-employed by the employer within six (6) months of the date his disability ceases, his credited service shall not be deemed to have been interrupted, but shall not include any time during which he was not an employee.

A member of Division B who is an employee and who becomes disabled as defined in this section shall be eligible to retire on his disability retirement date which shall be the first day of the month following the determination by the pension commission that he is disabled, and to receive a disability benefit as provided in Section 3.12.

Sec. 3.12. Disability in line of duty—Benefit.

A member of Division B shall receive a monthly disability retirement benefit, which shall be payable on his disability retirement date, as defined in Section 3.11, and on the first day of each month thereafter during the period of his disability, as defined in Section 3.11, and during his lifetime. Such monthly disability retirement benefit shall be equal to one-twelfth ($^1/_{12}$) of fifty percent (50%) of his credited earnings.

Sec. 3.13. Disability not in line of duty—Conditions.

Disability not in line of duty shall mean a physical or mental condition of a member of Division B which has rendered him incapable of efficiently discharging the duties of his position, which is likely to be permanent, and which has rendered him incapable of being gainfully employed. The pension commission shall have exclusive authority to determine the existence of disability not in line of duty. The pension commission, in its sole discretion, may secure medical and other evidence as it deems necessary and appropriate. Once each calendar year, the pension commission may require any retired member who is receiving a disability benefit because of disability not in line of duty and who has not reached his sixtieth birthday to undergo a medical examination by a physician or physicians designated by the pension commission, and such examination shall be made at the place of residence of such retired member or at any other place the pension commission designates. If the pension commission determines from such medical examination or any other evidence that the disability of the retired member has ceased, his disability benefit shall be discontinued as of the date of such determination. If a retired member refuses to submit to such medical examination, his disability benefit shall be discontinued until he shall actually undergo such medical examination; and if he fails to undergo such medical examination for one year from the date the pension commission requires such medical examination, his disability benefit shall be discontinued permanently. Prior to July 1 in each calendar year, the pension commission may require any retired member who received a disability benefit in the preceding calendar year because of disability not in line of duty and who has not reached his sixteenth birthday to submit proof satisfactory to the pension commission of the amount of his income earned in such preceding calendar year and derived from gainful employment. If the pension commission determines that he is gainfully employed, his disability benefit shall be discontinued as of the date of such determination; provided, however, that if the retired member reapplies for disability benefits and the commission determines that disability exists, payment of his disability benefit shall resume as of the date of such determination. If a retired member refuses to submit such proof to the pension commission prior to July 1 in each calendar year, his disability benefit shall be discontinued after such date and until he actually submits such proof; and if he fails to submit such proof within one year of such date, his disability benefit shall be discontinued permanently. If the disability benefit of a retired member is discontinued permanently prior to his sixtieth birthday and he is re-employed by the employer within six (6) months of the date his disability ceases, his credited service shall not be deemed to have been interrupted, but shall not include any time during which he was not an employee. A member of Division B who is an employee, who has completed at least five (5) years of credited service, and who becomes disabled as defined in this section shall be eligible to retire on his disability retirement date which shall be the first day of the month following the determination by the pension commission that he is disabled, and to receive a disability benefit as provided in Section 3.14.

Sec. 3.14. Disability not in line of duty—Benefit.

A member of Division B shall receive a monthly disability retirement benefit, which shall be payable on his disability retirement date, as defined in Section 3.13, and on the first day of each month thereafter during the period of his disability, as defined in Section 3.13, and during his lifetime; provided, however, that if the mem-

ber of Division B has not contributed to the fund as of his disability retirement date for twenty-four (24) full years, he shall contribute to the fund in accordance with the applicable contribution rate of a retired member as set forth in Section 3.07, and he shall contribute such amount during his lifetime and during the period of his disability, as defined in Section 3.13, or until he has made contributions to the fund before and after retirement for twenty-four (24) full years, whichever is the shorter period of time. Such monthly disability retirement benefit shall be equal to one-twelfth (1/12) of the applicable percent of his credited earnings (set forth in the table below) and based on his years of credited service, as follows:

Years of Credited Service	Percent of Credited Earnings
Five (5) years	20%
Six (6) years	25%
Seven (7) years	30%
Eight (8) years	35%
Nine (9) years	40%
Ten (10) years or more	50%

Sec. 3.15. Termination of employment.

If the employment of a member of Division B is terminated with prejudice, as defined in Section 3.05(d), he shall not be eligible to receive any benefits provided by this section, notwithstanding anything in his section to the contrary. A member of Division B shall not be eligible to receive benefits provided by more than one of the subparagraphs set forth below in this section.

(a) Any member of Division B who has completed less than twenty-three (23) months of credited service at the time of his termination of employment, voluntary or involuntary, shall not receive any benefits provided by this section.

(b) Any member of Division B who has completed twenty three (23) months or more of credited service at the time of his termination of employment, voluntary or involuntary, may elect to receive, in lieu of all other benefits he is eligible to receive, a refund of seventy-five percent (75%) of the member's contributions to the fund standing to his credit less any benefits paid to him prior to his date of termination of employment.

(c) Any member of Division B who has completed ten (10) years or more of credited service at the time of his termination of employment and who is involuntarily deprived of his employment without fault on his part or terminates his employment voluntarily may elect to receive, in lieu of all other benefits he is eligible to receive (1) or (2), as follows:

(1) A refund of seventy-five percent (75%) of the member's contributions to the fund standing to his credit less any benefits paid to him prior to his date of termination of employment; or

(2) A monthly retirement benefit which shall be payable on the first day of the month following his sixtieth birthday and on the first day of each month thereafter during his lifetime and which shall be computed in the same manner set forth in Section 3.10; provided, however, that he shall contribute to the fund in accordance with Section 3.07, as such section applied to a retired member, and he shall contribute such amount during his lifetime or until he has made contributions to the fund before and after retirement for twenty-four (24) full years, whichever is the shorter period of time.

(d) Any member of Division B who has completed more than twenty-three (23) months of credited service but less than fifteen (15) years of credited service and who is involuntarily deprived of his employment without fault on his part may elect to receive, in lieu of all other benefits he is eligible to receive, a refund of eighty-five percent (85%) of the member's contributions to the fund standing to his credit, less any benefits paid to him prior to his date of termination of employment.

(e) Any member of Division B who has completed fifteen (15) years or more of credited service, who has reached his sixtieth birthday and who is involuntarily deprived of his employment without fault on his part or terminates his employment voluntarily may elect to receive, in lieu of all other benefits he is eligible to receive, a monthly retirement benefit, which shall be payable on the first day of the month following his date of termination of employment and each month thereafter during his lifetime, equal to one-twelfth (1/12) of the applicable percent of his credited earnings (set forth in the table below) which shall be based on his years of credited service as of his date of termination of employment; provided, however, that if the member of Division B has not contributed to the fund as of his date of termination of employment for the applicable number of full years (set forth in the table below), he shall contribute to the fund in accordance with Section 3.07, as such section applies to a retired member, and he shall contribute such amount during his lifetime or until he has made contributions to the fund before and after retirement for such number of full years, whichever is the shorter period of time.

Credited Service	Percent of Credited Earnings	Number of Full Years Member Shall Contribute to the Fund
15 years	30%	15 years
16 years	32%	16 years
17 years	34%	17 years
18 years	36%	18 years
19 years	38%	19 years
20 years	40%	20 years
21 years	42%	21 years
22 years	44%	22 years
23 years	46%	23 years
24 years or more	48%	24 years

(f) Any member of Division B who has completed twenty-eight (28) years or more of credited service and who is involuntarily deprived of his employment without fault on his part may elect to receive, in lieu of all other benefits he is eligible to receive, a monthly retirement benefit which shall be payable on the first day of the month following his date of termination of employment and each month thereafter during his lifetime and which shall be computed in the manner set forth in Section 3.10; provided, however, that he shall contribute to the fund in accordance with Section 3.07, as such section applies to a retired member, and he shall contribute such amount during his lifetime or until he has made contributions to the fund before and after retirement for twenty-four (24) full years, whichever is the shorter period of time.

Sec. 3.16. Survivor benefits—Conditions.

The survivor of a member or retired member of Division B, as the case may be, who is eligible to receive a survivor benefit, shall receive a survivor benefit as provided in Section 3.17; provided, however, that the member of retired member of Division B meets the following conditions:

(a) The member or retired member of Division B has contributed to the fund for at least five (5) years in accordance with the applicable contribution rate set forth in subparagraphs (a), (b), (d) or (e) of Section 3.07, and dies from any cause; or

(b) The member of Division B loses his life in the line of duty.

Upon the death of a member or retired member of Division B who has met the conditions set forth above in this section, the survivor who is eligible to receive the monthly survivor benefit provided in Section 3.17 shall be determined as follows:

(1) The widow shall receive a monthly survivor benefit as provided in Section 3.17 which shall be payable on the first day of the month following the date of death of the member or retired member of Division B and on the first day of each month thereafter during the widow's lifetime or as long as she is a widow, as defined in Section 3.02(g), whichever is the shorter period of time.

(2) If there is no widow on the day next following the date of death of a member or retired member of Division B, the dependent child shall receive a monthly survivor benefit as provided in Section 3.17 which shall be payable on the first day of the month following the date of death of the member or retired member of Division B and on the first day of each month thereafter as long as he is a dependent child, but in no event shall the monthly survivor benefit be payable to a dependent child for more than ten (10) full years. If there are dependent children, the monthly survivor benefit provided in Section 3.17 shall be divided equally between the dependent children.

(3) If there is no widow or dependent child on the day next following the date of death of a member or retired member of Division B, the dependent mother shall receive a monthly survivor benefit as provided in Section 3.17 which shall be payable on the first day of the month following the date of death of the member or retired member of Division B and on the first day of each month thereafter during the dependent mother's lifetime or as long as she is a dependent mother, as defined in Section 3.02(f), whichever is the shorter period of time.

Sec. 3.17. Survivor benefits.

The survivor, determined in accordance with the provisions of Section 3.16, shall receive a monthly survivor benefit which shall be payable for the period of time set forth in Section 3.16 and which shall equal sixty percent (60%) of the benefit computed in the same manner set forth in Section 3.10, except that such computation shall be made as of the date of death of the member or retired member of Division B provided, however, that such monthly survivor benefit shall not be more than one hundred twenty-five dollars ($125.00) per month or less than fifty dollars ($50.00) per month.

Sec. 3.18. Benefits payable to retired members and survivors prior to effective date.

All benefits payable to retired members and their survivors in accordance with the Davidson County Employees' Pension and Insurance Fund as it existed prior to the effective date shall continue unimpaired for the same duration provided in the Davidson County Employees' Pension and Insurance Fund as it existed prior to the effective date, and such benefits shall be an obligation and liability of this system, subject to the provisions of this Act. No provision of this Act shall be construed to affect in any way the benefits payable to a retired

member or survivor, who commenced receiving benefits prior to the effective date, notwithstanding any provision of this Act to the contrary.

ARTICLE 4. MISCELLANEOUS PROVISIONS

Sec. 4.01. Severability.

The provisions of this Act are hereby declared to be severable; and, if any of its section, provisions, exceptions, sentences, clauses, phrases, or parts be unconstitutional or void, the remainder of this Act shall continue in full force and effect, it being the legislative intent, now hereby declared, that this Act would be passed, even if such unconstitutional or void matter had not been included therein.

Sec. 4.02. Chapter 452 of the Private Acts of 1941, the Davidson County Pension Act.

Chapter 452 of the Private Acts of 1941, the Davidson County Pension Act, and all laws and parts of laws in conflict with this Act, be, and the same are hereby repealed, except that such repeal of Chapter 452 of the Private Acts of 1941 shall not deprive those employees of pension benefits under said Act who may have been retired prior to the passage of Chapter 29 of the Private Acts of 1945.

Article VI. Municipal Auditorium

Editor's note—This article consists of chapter 537, Private Acts 1949, as amended by Private Acts 1957, chapter 209. The provisions of this Act should be read as applicable to the Metropolitan Government of Nashville and Davidson County, rather than to Davidson County. Amendments are indicated by a historical citation following each amended section.

Sec. 1. Bonds—Authority to issue; limitation on amount; term; manner of sale; approval by resolution and by voters.

The City of Nashville, acting through its city council as its governing body, is hereby authorized to issue its Municipal Auditorium Bonds in such amount not greater than five million dollars ($5,000,000.00) and having such maturities not longer than forty years, interest rates and other details as may be fixed by resolution or resolutions to be adopted by its city council. The bonds so issued shall be the direct and general obligations of the City of Nashville, for the prompt payment of principal of and interest on which as they respectively become due, the full faith, credit and resources of the City of Nashville shall be pledged, and for such purpose taxes on all taxable property in said city shall be levied without limitation as to rate or amount. The bonds so authorized shall be sold at one time or in blocks from time to time, in such manner and for such price or prices as may be recommended to the city council by the Nashville Municipal Auditorium Commission created in Section 3 hereof, but in no event at a price which will result in an interest cost to the city of more than five percent per annum computed according to standard tables of bond values. The bonds herein authorized may not be issued until a proposition stating the maximum amount, maximum interest rate, and the purpose thereof shall have been approved by a majority of the qualified electors of the City of Nashville voting on the proposition at a special election to be held in said city on May 5, 1949. The Election Commissioners of Davidson County are hereby instructed to do all things necessary to the calling and holding of such election, including the appointment of election officials, the qualifications of voters, the conduct of the election and the certification of the results thereof to the City Council of the City of Nashville shall be governed by the general laws of the State of Tennessee pertaining to elections. The city council shall enter on its records a finding of the results of such election and such findings shall be conclusive for all purposes.

Sec. 2. Same—Use of proceeds.

Any bonds issued pursuant hereto shall be delivered to the purchaser or purchasers thereof by the city treasurer and the proceeds thereof shall be placed in a special fund in the city treasury to be paid out from time to time for the purpose of acquiring a municipal auditorium for said city, including the payment of the cost of furnishing and equipping the auditorium and all incidental costs and expenses properly incurred in connection with the acquisition of the auditorium and the authorization and issuance of the bonds. The auditorium may be acquired through purchase, gift, condemnation or construction or any combination thereof, and the city council is authorized to acquire as part of the project any necessary improved or unimproved real estate. Such auditorium shall not be available to any user other than the City of Nashville without the payment of reasonable and proper compensation therefor to the city.

Sec. 3. Municipal auditorium commission created.

There is hereby created a commission, in which commission is imposed full power to select the site on which the auditorium is to be placed, to let all necessary construction contracts, to supervise the construction, to negotiate and execute lease agreements for any land or air rights that it may acquire, furnishing and equipment of the auditorium, and after its completion, to have full management and control of its maintenance and opera-

tion. Such commission shall be composed of seven members, of whom one shall be chairman. The following named persons shall be the first members of the commission, and the terms of each shall commence on the date this Act becomes effective. James Gallagher and A.B. Benedict, Jr., to serve to a date one year from the date on which the Supervising Architect or Engineer certifies that the construction of the auditorium has been completed; Thomas Delbridge and C.L. Ennix to serve to a date two years from such date of completion; D.L. Lansden and Lee Sanders to serve to a date three years from such date of completion, and William Hume to serve to a date four years from such date of completion and to act as chairman. Each vacancy in office shall be filled by the mayor with the approval of the city council, and all terms of members succeeding the first five members of the commission shall be four years, except as to persons appointed to fill unexpired terms. After the expiration of the term of the person hereinabove appointed as chairman, the chairman shall be elected by the commission from its members. Such commission shall be known as the "Nashville Municipal Auditorium Commission", and shall also elect from its members a vice-chairman and shall appoint a secretary and a treasurer or a combined secretary-treasurer who may but need not be members of the commission. Such commission may adopt such by-laws and rules for the orderly handling of its affairs as it may consider fit and may employ such persons and at such compensation as it may consider necessary to carry out its functions. The members of the commission shall serve without compensation but the secretary and the treasurer may be paid reasonable compensation for the carrying out of their duties. The commission shall have complete control of the management, maintenance and operation of the auditorium and in that connection shall have all powers ordinarily enjoyed by private corporations operating similar properties.

Sec. 4. Authority of Act.

This Act shall without reference to any other law of Tennessee or provision of the City Charter of the City of Nashville now in force or hereafter enacted, be full authority for the authorization, sale and issuance of the bonds herein authorized and except for the election for which provision is hereinabove made, no proceedings or notice in respect of the issuance of such bonds other than the resolutions herein specified shall be necessary. Bonds issued hereunder shall not be considered as indebtedness of the city in computing such indebtedness for purposes of any limitation of indebtedness imposed on the city by any general law or by any provision of the City Charter.

Sec. 5. Exempt from taxation.

All bonds issued hereunder and the income derived therefrom shall be exempt from taxation by the State of Tennessee and by all counties and municipalities therein.

Sec. 6. Effective date.

All laws or parts of laws in conflict herewith are to the extent of such conflict hereby repealed, and that this Act shall take effect from and after its passage,[8] the public welfare requiring it.

8. Passed April 4, 1949. Approved by the governor April 6, 1949.

CHARTER AND RELATED LAWS
COMPARATIVE TABLE

This table shows the location of the sections of the basic Charter and any amendments thereto.

Resolution No.	Ordinance No.	Adoption Date/ Election Date	Section this Charter
	BL2005-768	10-18-2005	App. 1
RS2006-1487		11- 7-2006	6.07
			1.08
			8.121
			5.06
			6.02, 6.04
			11.102
RS2007-1846		8- 2-2007	15.03
RS2008-404		11- 4-2008	6.02, 6.04
			1.07 A.
	BL2009-580	12-18-2009	App. 1
	BL2009-581	12-18-2009	App. 1
	BL2009-582	12-18-2009	App. 1
	BL2002-1180	10- 3-2002	App. 1
	BL2010-758	10-20-2010	App. 1
	Amdt. 1		App. 1
	BL2010-759	10-20-2010	App. 1
	Amdt. 1		App. 1
RS2010-1119		11- 2-2010	12.05
Amdt. 1			12.05
	BL2011-861	4- 5-2011	App. 1
	BL2011-902	4-12-2011	App. 2
	Amdt. 1		App. 2
		8- 4-2011	11.602(d)
RS2012-277		9-18-2012/ 11- 6-2012	12.05
			8.404
			16.05
			8.206
			8.402
			8.502
Amdt. 3		8- 6-2015	8.109
Amdt. 1 by ref. petition		11- 6-2018	11.1301—11.1303
Amdt. 2 (RS2018-1314, § 1(Amdt. A))		11- 6-2018	5.05
Amdt. 3 (RS2018-1314, § 1(Amdt. B))		11- 6-2018	15.03
Amdt. 4 (RS2018-1314, § 1(Amdt. D))		11- 6-2018	3.08
			5.08
Amdt. 5 (Failed at ballot)			

Resolution No.	Ordinance No.	Adoption Date/ Election Date	Section this Charter
Amdt. 6 (RS2018-1314, § 1(Amdt. F))		11- 6-2018	1.07 3.01 3.02 3.03 3.05 3.07 4.01 5.02 5.03 5.04 5.07 6.02 6.04 6.08 6.11 7.05 8.102 8.103 8.104 8.105 8.106 8.107 8.108 8.110 8.113 8.114 8.116 8.117 8.118 8.119 8.203 8.205 8.207 8.208 8.303 8.306 8.404 8.405 8.503 8.504 8.603 8.604 8.607 8.609 8.703 8.704 9.06.1 9.10 10.102

Resolution No.	Ordinance No.	Adoption Date/Election Date	Section this Charter
			10.105
			10.106
			10.108
			10.110
			10.202
			10.205
			11.101.1
			11.102
			11.105
			11.201
			11.502
			11.503
			11.1004
			11.1102
			11.1204
			12.04
			12.05
			12.06
			12.07
			12.08
			12.10
			12.11
			13.03
			13.04
			13.06
			13.08
			13.09
			13.09.1
			13.12
			14.03
			14.09
			14.09A
			14.10
			14.11
			14.14
			14.18
			14.19
			14.22
			14.23
			15.01
			15.02
			15.07
			15.08
			15.09
			15.10
			16.01
			16.03
			16.05
			18.01
			18.04
			18.05
			18.06
			18.13
			19.01

Resolution No.	Ordinance No.	Adoption Date/Election Date	Section this Charter
			20.03
			20.06
			20.08
			20.11
			20.13
			20.17
			20.19
			20.20
RS2019-1720 (Amdt. 1)		8- 1-2019	6.04
RS2019-1720 (Amdt. 2)		8- 1-2019	9.02
	BL2021-1052	1-18-2022	App. 2
RS2022-1475		5- 5-2022/8-4-2022	8.208
			8.306
			8.401—8.406
			10.101—10.107
			10.110
			19.01—19.06

Title 1

GENERAL PROVISIONS

Chapters:

1.01	**Code Adoption**
1.04	**General Provisions**
1.08	**Civil Districts**
1.12	**Elections**
1.16	**Metropolitan Jail and Workhouse**
1.20	**Registration of Convicts**
1.24	**General Penalty and Citations for Violations**

Chapter 1.01

CODE ADOPTION

Sections:

1.01.010	**Code adopted by reference—Scope—Contents.**
1.01.020	**Copies of Code on file.**
1.01.030	**General penalty for Code violations—Continuing offenses—Schedule.**
1.01.040	**Severability.**
1.01.050	**Supplemental and replacement pages.**

1.01.010 Code adopted by reference—Scope—Contents.

There is hereby re-adopted by the Metropolitan Council that certain Code entitled "The Code of The Metropolitan Government of Nashville and Davidson County, Tennessee" prepared by Municipal Code Corporation, containing certain ordinances of a general and permanent nature enacted on or before May 22, 2025, as compiled, consolidated, codified, and indexed in Titles 1 to 17, including those supplemental and replacement pages having in the lower right-hand or left-hand corner thereof the notation: Met. Nashville Davidson Co., Supp. No. 51 (7/25), as revised. (Ord. BL2025-1074 § 1, 2025; Ord. BL2025-959 § 1, 2025; Ord. BL2025-813 § 1, 2025; Ord. BL2025-745 § 1, 2025; Ord. BL2024-551 § 1, 2024; Ord. BL2024-261 § 1, 2024; Ord. BL2023-3 § 1, 2023; Ord. BL2023-1862 § 1, 2023; Ord. BL2023-1685 § 1, 2023; Ord. BL2022-1476 § 1, 2022; Ord. BL2022-1333 § 1, 2022; Ord. BL2022-1175 § 1, 2022; Ord. BL2021-978 § 1, 2021; Ord. BL2021-800 § 1, 2021; Ord. BL2021-689 § 1, 2021; Amdt. 1 to Ord. BL2021-596 § 1, 2020; Ord. BL2021-596 § 1, 2020; Ord. BL2020-495 § 1, 2020; Ord. BL2020-383 § 1, 2020; Ord. BL2020-306 § 1, 2020; Ord. BL2019-113 § 1, 2020; Ord. BL2019-1740 § 1, 2019; Ord. BL2018-1387 § 1, 2018; Ord. BL2018-1181 § 1, 2018; Ord. BL2017-986 § 1, 2017; Ord. BL2017-733 § 1, 2017; Ord. BL2016-434 § 1, 2016; Ord. BL2016-260 § 1, 2016; Ord. BL2016-207 § 1, 2016; Ord. BL2015-46 § 1, 2015; Ord. BL2015-1214 § 1, 2015; Ord. BL2015-1063 § 1, 2015; Ord. BL2014-825 § 1, 2014; Ord. BL2013-601 § 1, 2013; Ord. BL2013-446 § 1, 2013; Ord. BL2013-369 § 1, 2013; Ord. BL2012-211 § 1, 2012; Ord. BL2012-130 § 1, 2012; Ord. BL2011-60 § 1, 2012; Ord. BL2011-955 § 1, 2011; Ord. BL2011-906 § 1, 2011; Ord. BL2010-826 § 1, 2011; Ord. BL2010-751, § 1, 2010; Ord. BL2010-616 § 1, 2010; Ord. BL2009-540 § 1, 2009; Ord. BL2009-481 § 1, 2009; Ord. BL2009-370 § 1, 2009; Ord. BL2008-155 § 1, 2008; Ord. BL2007-1 § 1, 2007; Ord. BL2007-1448 § 1, 2007; Ord. BL2006-1287 § 1, 2006; Ord. BL2005-788 § 1, 2005; Ord. BL2005-672 § 1, 2005; Ord. BL2004-420 § 1, 2004; Ord. BL2004-356 § 1, 2004; Ord. BL2004-230 § 1, 2004; Ord. BL2004-182 § 1, 2004; Ord. BL2003-40 § 1, 2003; Ord. BL2003-32 § 1, 2003; Ord. BL2003-1406 § 1, 2003; Ord. BL2003-1338 § 1, 2003; Ord. BL2003-1302 § 1, 2003; Ord. BL2002-1130 § 1, 2002; Ord. BL2002-1072 § 1, 2002; Ord. BL2002-1025 § 1, 2002; Ord. BL2002-948 § 1, 2002; Ord. BL2001-771 § 1, 2001; Ord. BL2001-693 § 1, 2001; Ord. BL2001-575 § 1, 2001; Ord. BL2000-512 § 1, 2000; Ord. BL2000-329 § 1, 2000; Ord. BL2000-275 § 1, 2000; Ord. 97-1009 § 1, 1997; Ord. 97-794 § 1, 1997; Ord. 96-528 § 1, 1996; Ord. 96-346 § 1, 1996; Ord. 95-103 § 1, 1995; Ord. 95-1435 § 1, 1995; § 2 of Amdt. 1 to Ord. 95-1353, 3/21/95; Ord. 95-1353 § 1, 1995; Ord. 94-1260 § 1, 1995; Ord. 93-577 § 1, 1993; Ord. 91-116 § 1, 1992; Amdt. 3 to Ord. 91-1680, 8/20/91; Ord. 91-1680 § 1, 1991)

1.01.020 Copies of Code on file.

At least two copies of the Code hereby re-adopted containing the supplemental and replacement pages properly inserted therein shall be kept on file in the office of the metropolitan clerk and be kept there available for public inspection and use. In addition, at least two complete sets of the supplemental and replacement pages described in Section 1.01.010 of this chapter shall be stapled or permanently fastened together and kept on file in the office of the metropolitan clerk and be kept there available for public inspection and use. (Ord. BL2025-1074 § 2, 2025; Ord. BL2025-959 § 2, 2025; Ord. BL2025-813 § 2, 2025; Ord. BL2025-745 § 2, 2025; Ord. BL2024-551 § 2, 2024; Ord. BL2024-261 § 2, 2024; Ord. BL2023-3 § 2, 2023; Ord. BL2023-1862 § 2, 2023; Ord. BL2023-1685 § 2, 2023; Ord. BL2022-1476 § 2, 2022; Ord. BL2022-1333 § 2, 2022; Ord. BL2022-1175 § 2, 2022; Ord. BL2021-978 § 2, 2021; Ord. BL2021-800 § 2, 2021; Ord. BL2021-689 § 2, 2021; Ord. BL2021-596 § 2, 2020; Ord. BL2020-495 § 2, 2020; Ord. BL2020-383 § 2, 2020; Ord. BL2020-306 § 2, 2020; Ord. BL2019-113 § 2, 2020; Ord. BL2019-1740 § 2, 2019; Ord. BL2018-1387 § 2, 2018; Ord. BL2018-1181 § 2, 2018; Ord. BL2017-986 § 2, 2017; Ord. BL2017-733 § 2, 2017; Ord. BL2016-434 § 2, 2016; Ord. BL2016-260 § 2, 2016; Ord. BL2016-207 § 2, 2016; Ord. BL2015-46 § 2, 2015; Ord. BL2015-1214 § 2, 2015; Ord. BL2015-1063 § 2, 2015; Ord. BL2014-825 § 2, 2014; Ord. BL2013-601 § 2, 2013; Ord. BL2013-446 § 2, 2013; Ord. BL2013-369 § 2, 2013; Ord. BL2012-211 § 2, 2012; Ord. BL2012-

130 § 2, 2012; Ord. BL2011-60 § 2, 2012; Ord. BL2011-955 § 2, 2011; Ord. BL2011-906 § 2, 2011; Ord. BL2010-826 § 2, 2011; Ord. BL2010-616 § 1, 2010; Ord. BL2009-481 § 1, 2009; Ord. BL2004-420 § 2, 2004; Ord. BL2004-356 § 2, 2004; Ord. BL2004-230 § 2, 2004; Ord. BL2004-182 § 2, 2004; Ord. BL2003-40 § 2, 2003; Ord. BL2003-32 § 2, 2003; Ord. BL2003-1406 § 2, 2003; Ord. BL2003-1338 § 2, 2003; Ord. BL2003-1302 § 2, 2003; Ord. BL2002-1130 § 2, 2002; Ord. BL2002-1072 § 2, 2002; Ord. BL2002-1025 § 2, 2002; Ord. BL2002-948 § 2, 2002; Ord. BL2001-771 § 2, 2001; Ord. BL2001-693 § 2, 2001; Ord. BL2001-575 § 2, 2001; Ord. BL2000-512 § 2, 2000; Ord. BL2000-329 § 2, 2000; Ord. BL2000-275 § 2, 2000; Ord. 97-1009 § 2, 1997; Ord. 97-794 § 2, 1997; Ord. 96-528 § 2, 1996; Ord. 96-346 § 2, 1996; Ord. 95-103 § 2, 1995; Ord. 95-1435 § 2, 1995; Ord. 95-1353 § 2, 1995; Ord. 94-1260 § 2, 1995; Ord. 93-577 § 2, 1993; Ord. 91-116 § 2, 1992)

1.01.030 General penalty for Code violations—Continuing offenses—Schedule.

A. Wherever in the Code re-adopted by this ordinance codified in this chapter, or in any other ordinance or resolution of the metropolitan government or in any rule, regulation or order promulgated by any officer or agency of the metropolitan government under authority duly vested in him or her or if any act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, where no specific penalty is provided therefor, the violation of any such provision of such code or any other ordinance or resolution of the metropolitan government or such rule, regulation or order shall be punished by a penalty not to exceed fifty dollars.

B. Except where otherwise provided, every day any violation of such code or any other ordinance or resolution of the metropolitan government or such rule, regulation or order shall continue shall constitute a separate offense.

C. Any person electing to plead guilty and pay a fine in lieu of appearing in court for any moving metropolitan traffic violation shall pay a fifty dollar fine.

D. Any person electing to plead guilty and pay a fine in lieu of appearing in court for any metropolitan non-moving traffic violation shall pay a thirty-five dollar fine, with the exception of a violation of T.C.A. 55-9-603 (Seat Belt) charged as a metropolitan violation pursuant to Section 12.08.160, for which the fine shall be twenty dollars.

E. Any person electing to plead guilty and pay a fine in lieu of appearing in court for a violation of Section 12.44.040 subsections A. and B., as they pertain to parking meters, shall pay a fine of twenty-five dollars for each violation.

F. Any person electing to plead guilty and pay a fine in lieu of appearing in court for a violation of Section 12.44.040 subsection C., as it pertains to overtime parking at parking meters, shall pay a fine of twenty-five dollars.

G. Any person electing to plead guilty and pay a fine in lieu of appearing in court for all other parking violations shall pay a fine of twenty-five dollars unless otherwise specified.

H. Any person eligible and electing to plead guilty and pay a fine in lieu of appearing in court for any other violation of an ordinance, resolution, rule, regulation, or order of the metropolitan government shall pay a fifty dollar fine for each separate violation. (Ord. BL2025-1074 § 3, 2025; Ord. BL2025-959 § 3, 2025; Ord. BL2025-813 § 3, 2025; Ord. BL2025-745 § 3, 2025; Ord. BL2024-551 § 3, 2024; Ord. BL2024-261 § 3, 2024; Ord. BL2023-3 § 3, 2023; Ord. BL2023-1862 § 3, 2023; Ord. BL2023-1685 § 3, 2023; Ord. BL2022-1476 § 3, 2022; Ord. BL2022-1333 § 3, 2022; Ord. BL2022-1175 § 3, 2022; Ord. BL2021-978 § 3, 2021; Ord. BL2021-800 § 3, 2021; Ord. BL2021-689 § 3, 2021; Ord. BL2021-596 § 3, 2020; Ord. BL2020-495 § 3, 2020; Ord. BL2020-383 § 3, 2020; Ord. BL2020-306 § 3, 2020; Ord. BL2019-113 § 3, 2020; Ord. BL2019-1 § 1, 2019; Ord. BL2019-1740 § 3, 2019; Ord. BL2018-1387 § 3, 2018; Ord. BL2018-1181 § 3, 2018; Ord. BL2017-986 § 3, 2017; Ord. BL2017-733 § 3, 2017; Ord. BL2016-434 § 3, 2016; Ord. BL2016-260 § 3, 2016; Ord. BL2016-207 § 3, 2016; Ord. BL2015-46 § 3, 2015; Ord. BL2015-1214 § 3, 2015; Ord. BL2015-1063 § 3, 2015; Ord. BL2014-825 § 3, 2014; Ord. BL2013-601 § 3, 2013; Ord. BL2013-446 § 3, 2013; Ord. BL2013-369 § 3, 2013;Ord. BL2012-211 § 3, 2012; Ord. BL2012-130 § 3, 2012; Ord. BL2011-60 § 3, 2012; Ord. BL2011-955 § 3, 2011; Ord. BL2011-906 § 3, 2011; Ord. BL2010-826 § 3, 2011; Ord. BL2010-793 § 1, 2010; Ord. BL2010-616 § 1, 2010; Ord. BL2009-481 § 1, 2009; Ord. BL2004-420 § 3, 2004; Ord. BL2004-356 § 3, 2004; Ord. BL2004-230 § 3, 2004; Ord. BL2004-182 § 3, 2004; Ord. BL2003-40 § 3, 2003; Ord. BL2003-32 § 3, 2003; Ord. BL2003-1406 § 3, 2003; Ord. BL2003-1338 § 3, 2003; Ord. BL2003-1302 § 3, 2003; Ord. BL2002-1130 § 3, 2002; Ord. BL2002-1072 § 3, 2002; Ord. BL2002-1025 § 3, 2002; Ord. BL2002-948 § 3, 2002; Ord. BL2001-771 § 3, 2001; Ord. BL2001-693 § 3, 2001; Ord. BL2001-575 § 3, 2001; Ord. BL2000-512 § 3, 2000; Ord. BL2000-329

§ 3, 2000; Ord. BL2000-275 § 3, 2000; Ord. 99-1776 § 3, 1999; Ord. 98-1497 §§ 2, 3, 1999; Ord. 98-1447 § 1, 1999; Ord. 97-729 § 1, 1997; Ord. 97-1009 § 3, 1997; Ord. 97-794 § 3, 1997; Ord. 96-528 § 3, 1996; Ord. 96-346 § 3, 1996; Ord. 95-103 § 3, 1995; § 3 of Amdt. 1 to Ord. 95-1329, 2/21/95; Ord. 95-1329 § 1, 1995)

1.01.040 Severability.

It is declared to be the intention of the metropolitan county council that the sections, paragraphs, sentences, clauses, phrases and words of the ordinance codified in this chapter and the Code adopted in this chapter are severable, and if any section, paragraph, sentence, clause, phrase or word of such ordinance or of such Code shall be declared unconstitutional or otherwise invalid by any valid judgment or decree of a court of competent jurisdiction, such unconstitutionality or invalidity shall not affect any of the remaining sections, paragraphs, sentences, clauses, phrases and words of the ordinance codified in this chapter, or of this Code, since the same would have been enacted by the metropolitan county council without the incorporation in the Code of any such unconstitutional or invalid section, paragraph, sentence, clause, phrase or word. (Ord. BL2025-1074 § 4, 2025; Ord. BL2025-959 § 4, 2025; Ord. BL2025-813 § 4, 2025; Ord. BL2025-745 § 4, 2025; Ord. BL2024-551 § 4, 2024; Ord. BL2024-261 § 4, 2024; Ord. BL2023-3 § 4, 2023; Ord. BL2023-1862 § 4, 2023; Ord. BL2023-1685 § 4, 2023; Ord. BL2022-1476 § 4, 2022; Ord. BL2022-1333 § 4, 2022; Ord. BL2022-1175 § 4, 2022; Ord. BL2021-978 § 4, 2021; Ord. BL2021-800 § 4, 2021; Ord. BL2021-689 § 4, 2021; Ord. BL2021-596 § 4, 2020; Ord. BL2020-495 § 4, 2020; Ord. BL2020-383 § 4, 2020; Ord. BL2020-306 § 4, 2020; Ord. BL2019-113 § 4, 2020; Ord. BL2019-1740 § 4, 2019; Ord. BL2018-1387 § 4, 2018; Ord. BL2018-1181 § 4, 2018; Ord. BL2017-986 § 4, 2017; Ord. BL2017-733 § 4, 2017; Ord. BL2016-434 § 4, 2016; Ord. BL2016-260 § 4, 2016; Ord. BL2016-207 § 4, 2016; Ord. BL2015-46 § 4, 2015; Ord. BL2015-1214 § 4, 2015; Ord. BL2015-1063 § 4, 2015; Ord. BL2014-825 § 4, 2014; Ord. BL2013-601 § 4, 2013; Ord. BL2013-446 § 4, 2013; Ord. BL2013-369 § 4, 2013; Ord. BL2012-211 § 4, 2012; Ord. BL2012-130 § 4, 2012; Ord. BL2011-60 § 4, 2012; Ord. BL2011-955 § 4, 2011; Ord. BL2011-906 § 4, 2011; Ord. BL2010-826 § 4, 2011; Ord. BL2010-616 § 1, 2010; Ord. BL2009-481 § 1, 2009; Ord. BL2004-420 § 4, 2004; Ord. BL2004-356 § 4, 2004; Ord. BL2004-230 § 4, 2004; Ord. BL2004-182 § 4, 2004; Ord. BL2003-40 § 4, 2003; Ord. BL2003-32 § 4, 2003; Ord. BL2003-1406 § 4, 2003; Ord. BL2003-1338 § 4, 2003; Ord. BL2003-1302 § 4, 2003; Ord. BL2002-1130 § 4, 2002; Ord. BL2002-1072 § 4, 2002; Ord. BL2002-1025 § 4, 2002; Ord. BL2002-948 § 4, 2002; Ord. BL2001-771 § 4, 2001; Ord. BL2001-693 § 4, 2001; Ord. BL2001-575 § 4, 2001; Ord. BL2000-512 § 4, 2000; Ord. BL2000-329 § 4, 2000; Ord. BL2000-275 § 4, 2000; Ord. 97-1009 § 4, 1997; Ord. 97-794 § 4, 1997; Ord. 96-528 § 4, 1996; Ord. 96-346 § 4, 1996; Ord. 95-103 § 4, 1995; Ord. 95-1435 § 4, 1995; Ord. 95-1353 § 4, 1995; Ord. 94-1260 § 4, 1995; Ord. 93-577 § 4, 1993; Ord. 91-116 § 4, 1992)

1.01.050 Supplemental and replacement pages.

The supplemental and replacement pages to the Code of the metropolitan government described in Section 1.01.010 and approved in this chapter shall be distributed upon request to the various departments of the metropolitan government free of charge. Any other persons or organization desiring a copy thereof may obtain the same from Municipal Code Corporation in accordance with the contract between codifier and the metropolitan government. The metropolitan clerk shall notify all Davidson County Judges of the Metropolitan General Sessions, Circuit, Chancery and Criminal Courts that the supplemental and replacement pages to the Code of the metropolitan government which are described in Section 1.01.010 are available. (Ord. BL2025-1074 § 5, 2025; Ord. BL2025-959 § 5, 2025; Ord. BL2025-813 § 5, 2025; Ord. BL2025-745 § 5, 2025; Ord. BL2024-551 § 5, 2024; Ord. BL2024-261 § 5, 2024; Ord. BL2023-3 § 5, 2023; Ord. BL2023-1862 § 5, 2023; Ord. BL2023-1685 § 5, 2023; Ord. BL2022-1476 § 5, 2022; Ord. BL2022-1333 § 5, 2022; Ord. BL2022-1175 § 5, 2022; Ord. BL2021-978 § 5, 2021; Ord. BL2021-800 § 5, 2021; Ord. BL2021-689 § 5, 2021; Ord. BL2021-596 § 5, 2020; Ord. BL2020-495 § 5, 2020; Ord. BL2020-383 § 5, 2020; Ord. BL2020-306 § 5, 2020; Ord. BL2019-113 § 5, 2020; Ord. BL2019-1740 § 5, 2019; Ord. BL2018-1387 § 5, 2018; Ord. BL2018-1181 § 5, 2018; Ord. BL2017-986 § 5, 2017; Ord. BL2017-733 § 5, 2017; Ord. BL2016-434 § 5, 2016; Ord. BL2016-260 § 5, 2016; Ord. BL2016-207 § 5, 2016; Ord. BL2015-46 § 5, 2015; Ord. BL2015-1214 § 5, 2015;Ord. BL2015-1063 § 5, 2015; Ord. BL2014-825 § 5, 2014; Ord. BL2013-601 § 5, 2013; Ord. BL2013-446 § 5, 2013; Ord. BL2013-369 § 5, 2013; Ord. BL2012-211 § 5, 2012; Ord. BL2012-130 § 5, 2012; Ord. BL2011-60 § 5, 2012; Ord. BL2011-955 § 5, 2011; Ord. BL2011-906 § 5, 2011; Ord. BL2010-826 § 5, 2011; Ord. BL2010-616 § 1, 2010; Ord. BL2009-481 § 1, 2009; Ord. BL2006-1287 § 1, 2006; Ord. BL2004-420 § 5, 2004; Ord. BL2004-356 § 5, 2004; Ord. BL2004-230 § 5, 2004; Ord. BL2004-182 § 5,

2004; Ord. BL2003-40 § 5, 2003; Ord. BL2003-32 § 5, 2003; Ord. BL2003-1406 § 5, 2003; Ord. BL2003-1338 § 5, 2003; Ord. BL2003-1302 § 5, 2003; Ord. BL2002-1130 § 5, 2002; Ord. BL2002-1072 § 5, 2002; Ord. BL2002-1025 § 5, 2002; Ord. BL2002-948 § 5, 2002; Ord. BL2001-771 § 5, 2001; Ord. BL2001-693 § 5, 2001; Ord. BL2001-575 § 5, 2001; Ord. BL2000-512 § 5, 2000; Ord. BL2000-329 § 5, 2000; Ord. BL2000-275 § 5, 2000; Ord. 97-1009 § 5, 1997; Ord. 97-794 § 5, 1997; Ord. 96-528 § 5, 1996; Ord. 96-346 § 5, 1996; Ord. 95-103 § 5, 1995; Ord. 95-1435 § 5, 1995; Ord. 95-1353 § 5, 1995; Ord. 94-1260 § 5, 1995; Ord. 93-577 § 5, 1993; Ord. 91-116 § 5, 1992)

Chapter 1.04

GENERAL PROVISIONS

Sections:

1.04.010	**Name of code for citation—Contents.**
1.04.020	**Definitions and rules of construction.**
1.04.030	**Provisions considered continuations of existing ordinances and earlier codes.**
1.04.040	**Catchlines of code sections.**
1.04.050	**Effect of repeal of ordinances.**
1.04.060	**Severability of portions of the code.**
1.04.070	**General compliance requirement for permits issued by metropolitan government.**

1.04.010 Name of code for citation—Contents.

The ordinances embraced in the following chapters and sections shall constitute and be designated as "The Code of the Metropolitan Government of Nashville and Davidson County, Tennessee," and may be so cited. The code may also be cited as "Metropolitan Code." (Prior code § 1-1-1)

1.04.020 Definitions and rules of construction.

In the construction of this code and of all other ordinances applicable within the metropolitan government area, the following definitions and rules of construction shall be observed, unless inconsistent with the manifest intent of the metropolitan council or the context clearly requires otherwise:

A. Definitions.

"Council" and "metropolitan council" means the council of the Metropolitan Government of Nashville and Davidson County.

"General services district" means the general services district of the metropolitan government, established by Section 1.03 of the Metropolitan charter and described in Appendix One of the Metropolitan Charter.

"Metropolitan government" means the Metropolitan Government of Nashville and Davidson County.

"Metropolitan government area" means the area included within the boundaries of the Metropolitan Government of Nashville and Davidson County, as described in Appendix One of the Metropolitan Charter.

"Month" means a calendar month.

"Oath" means and shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

"Owner," applied to building or land, means and includes any part owner, joint owner, tenant in common, joint tenant or tenant by the entirety, of the whole or a part of such building or land.

"Person" means and includes a corporation, firm, partnership, association, organization and any other group acting as a unit, as well as an individual.

"Personal property" means and includes money, goods, chattels, things in action and evidences of debt.

"Preceding" and "following" means next before and next after, respectively.

"Property" means and includes real and personal property.

"Real estate" and "real property" mean and include lands, tenements and heritaments, and all rights thereto and interests therein, equitable as well as legal.

"Shall" and "May." The word "shall" is mandatory, the word "may" is permissive.

"Sidewalk" means any portion of a street between the curbline and the adjacent property line, intended for the use of pedestrians.

"Signature" or "subscription" means and includes a mark, when the person cannot write, the name being written near the mark and witnessed.

"State" means and shall be construed as if the words "of Tennessee" followed it.

"Street" means and includes any public way, road, highway, street, avenue, boulevard, parkway, alley, lane, viaduct, bridge, and the approaches thereto, within the metropolitan government area.

"Tenant" or "occupant," applied to a building or land, means and includes any person who occupies the land, means and includes any person who occupies the whole or a part of such building or land, whether alone or with others.

"Urban services district" means the urban services district of the metropolitan government, established by Section 1.03 of the Metropolitan Charter, and described in Appendix One of the Metropolitan Charter.

"Writing" and "written" mean and include printing and any other mode of representing words and letters.

"Year" means a calendar year, unless otherwise expressed or another intent is obvious from the context.

B. Rules of Construction.

1. Bonds. When a bond is required, an undertaking in writing shall be sufficient.

2. Certified Mail. Certified mail may be used instead of registered mail whenever this code or any other ordinance requires a notice to be given by registered mail.

3. Computation of Time. The time within which any act is to be done shall be computed by excluding the first and including the last day, unless the last day is a Saturday, a Sunday or a legal holiday, and then it shall also be excluded.

4. Gender. Words importing the masculine gender shall include the feminine and neuter.

5. Joint Authority. All words giving joint authority to three or more persons or officers shall be construed as giving such authority to a majority of such persons or officers, unless otherwise provided.

6. Number. Words used in the singular include the plural and the plural includes the singular number.

7. Officers, Departments and Agencies. The words "metropolitan clerk," "Chief of police," or any other named officer, department or agency, unless otherwise indicated, shall be construed to mean the clerk, chief of police or other officer, department or agency of the Metropolitan Government of Nashville and Davidson County.

8. Time. Words used in the past or present tense include the future as well as the past and present. (Prior code § 1-1-2)

Editor's note—Pursuant to Public Chapter 938 (2026), all Metro ordinances, resolutions, rules, policies, and procedures that include a reference to a natural person's sex or gender must be interpreted to mean the immutable characteristics of the person's reproductive system that identify the person as male or female, as determined by anatomy and genetics existing at the time of birth.

1.04.030 Provisions considered continuations of existing ordinances and earlier codes.

The provisions appearing in this code, so far as they are in substance the same as those of ordinances of the metropolitan government, or of the former City of Nashville, or provisions of the 1960 Code of the former City of Nashville, or resolutions of the quarterly county court of former Davidson County, existing at the time of the effective date of this code, shall be considered as continuations thereof and not as new enactments. (Prior code § 1-1-4)

1.04.040 Catchlines of code sections.

The catchlines of the several sections of this code, printed in boldface type, are intended as mere catchwords to indicate the contents of the section, and shall not be deemed or taken to be titles of such sections, nor as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted. (Prior code § 1-1-3)

1.04.050 Effect of repeal of ordinances.

A. The repeal of an ordinance shall not revive any ordinances in force before or at the time the ordinance repealed took effect.

B. The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect, nor any suit, prosecution or proceeding pending at the time of the repeal, for any offense committed under the ordinance repealed. (Prior code § 1-1-5)

1.04.060 Severability of portions of the code.

It is declared to be the intention of the metropolitan council that the sections, paragraphs, sentences, clauses and words of this code are severable, and if any word, clause, sentence, paragraph or section of this code shall be declared unconstitutional or otherwise invalid by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality or invalidity shall not affect any of the remaining words, clauses, sentences, paragraphs and sections of this code since the same would have been enacted by the metropolitan council without the incorporation in this code of any such unconstitutional or invalid word, clause, sentence, paragraph or section. (Prior code § 1-1-6)

1.04.070 General compliance requirement for permits issued by metropolitan government.

An individual or entity to which a permit is issued by the metropolitan government or any of its departments, agencies, boards, or commissions shall act at all times in compliance with the terms, conditions and requirements of the permit until its termination or expiration. Absent such compliance, a permit may be revoked or suspended following any notice requirements, subject to existing rights to re-apply and recognized rights of appeal. Permits issued as a result of false, inaccurate, or misleading information submitted by an applicant may likewise be revoked or suspended. The revocation or suspension of a permit by the metropolitan government shall be in addition to other penalties or enforcement measures authorized by metropolitan code sections providing for the issuance of particular permits. (Amdt. 1 to Ord. BL2018-1385 § 1, 2018; Ord. BL2018-1385 § 1, 2018)

Chapter 1.08

CIVIL DISTRICTS

Sections:

1.08.010	**First civil district designated—Boundaries.**
1.08.020	**Second civil district designated—Boundaries.**
1.08.030	**Map of district boundaries.**

1.08.010 First civil district designated—Boundaries.

The area embraced in the urban services district of the metropolitan government is designated as the first civil district of the metropolitan government. The boundaries of the first civil district, being the same as the urban services district, are fully described in Appendix One of the Metropolitan Charter. (Prior code § 1-1-9)

1.08.020 Second civil district designated—Boundaries.

The area of the metropolitan government, other than the urban services district, is designated as the second civil district, and the second civil district is described as that portion of the metropolitan government which is outside of the first civil district. (Prior code § 1-1-10)

1.08.030 Map of district boundaries.

A map of the metropolitan government, whose boundaries are the same as the boundaries of former Davidson County, is attached to the original copy of Ordinance 64-287 codified in this section, as Exhibit A, and made a part hereof, the same as though copies herein, which map has the first and second civil districts of the metropolitan government exhibited as described in Sections 1.08.010 and 1.08.020 of this chapter, and such map, with the civil districts exhibited thereon, shall be recorded in a book to be kept in the office of the county court clerk for this purpose, and also a copy shall be kept in the office of the metropolitan clerk. The metropolitan clerk shall cause a copy of such map to be forwarded to the secretary of state in accordance with Tennessee Code Annotated, Section 5-1-110. (Prior code § 1-1-11)

Chapter 1.12

ELECTIONS

Sections:

1.12.010	**Polling place defined.**
1.12.020	**Posting of political signs—On telephone or light poles.**
1.12.030	**Posting of political signs—Near polling places.**
1.12.040	**Distributing literature near polling places.**
1.12.050	**Restrictions on persons in or near polling places.**
1.12.060	**Soliciting votes near polling places.**

1.12.010 Polling place defined.

For the purposes of this chapter, a "polling place" means and is designated as the building or structure in which the voting machine is located. (Prior code § 13-1-1)

1.12.020 Posting of political signs—On telephone or light poles.

It is unlawful for any person to post, affix or display any posters, signs or pictures advertising the candidacy of anyone for public office on any telephone or light poles within the general services district. (Prior code § 13-1-5)

1.12.030 Posting of political signs—Near polling places.

It is unlawful for any person to post, affix or display any poster, signs or pictures advertising the candidacy of anyone for public office on any polling place or within two hundred feet thereof. (Prior code § 13-1-6)

1.12.040 Distributing literature near polling places.

It is unlawful for any candidate or any other person supporting any candidate or group of candidates for public office at an election, either primary, general or special, within the general services district, to hand out cards, handbills, literature, etc., on election days within two hundred feet of the entrance to any of the regularly designated polling places. (Prior code § 13-1-3)

1.12.050 Restrictions on persons in or near polling places.

No person, except officials of the election, legal watchers and metropolitan police officers on duty, shall be allowed to remain about a polling place except for such period of time as may be necessary for such person to vote. No police officer shall enter the room where the voting machines are located except at the request of the officer of the election, and then only for the purpose of preserving order. (Prior code § 13-1-7)

1.12.060 Soliciting votes near polling places.

It is unlawful for any candidate or any other person to solicit, within two hundred feet of the entrance to any polling place, any person qualified to vote in any election at the time and during the hours for holding an election, to vote for any person for any office involved in such election. (Prior code § 13-1-4)

Chapter 1.16

METROPOLITAN JAIL AND WORKHOUSE

Sections:

1.16.010	**Consolidation of metropolitan and urban jails and workhouses.**
1.16.020	**Sheriff's authority.**
1.16.030	**Reserved.**
1.16.040	**Prisoner incarceration procedures—Disposition of prisoner property.**
1.16.050	**Custody and interrogation of prisoners.**
1.16.060	**Reserved.**
1.16.070	**Escapes by prisoners.**
1.16.080	**Fee for inmate's personal items.**

1.16.010 Consolidation of metropolitan and urban jails and workhouses.

The urban jail is hereby consolidated with the metropolitan jail, and the urban workhouse is consolidated with the metropolitan workhouse. (Ord. BL2012-261 § 1, 2012; prior code § 12-1-4)

1.16.020 Sheriff's authority.

A. The metropolitan jail and the metropolitan workhouse shall be under the custody and control of the sheriff.

B. Subject to terms agreeable to the sheriff and the metropolitan hospital authority and approved by resolution of the metropolitan council, the sheriff shall provide security services for hospital authority facilities. (Ord. BL2009-458 § 1, 2009; prior code § 12-1-5)

1.16.030 Reserved.

Editor's note—Ord. BL2012-261, § 2, adopted Oct. 16, 2012, repealed § 1.16.030, which pertained to personnel needs and appropriations and derived from prior Code § 12-1-6.

1.16.040 Prisoner incarceration procedures—Disposition of prisoner property.

When a prisoner is to be incarcerated in the metropolitan jail, he shall be booked and fingerprinted in accordance with the procedures and in the manner prescribed by law. The police department may retain in its custody such property taken from the prisoner as may be required for evidence to support the charge placed against the prisoner, or such other property concerning which there are reasonable grounds to believe possession by the prisoner is unlawful. The police department shall turn over to the sheriff or his designated deputy a list of all property taken from each offender and retained by the police department. (Ord. BL2012-261 § 3, 2012; prior code § 12-1-7)

1.16.050 Custody and interrogation of prisoners.

The sheriff shall retain custody of every prisoner confined in the metropolitan jail or the metropolitan workhouse until such time as the release of the prisoner has been directed by lawful authority. The sheriff shall permit the interrogation of prisoners by authorized personnel of the police department. (Prior code § 12-1-8)

1.16.060 Reserved.

Editor's note—Ord. BL2012-261, § 4, adopted Oct. 16, 2012, repealed § 1.16.060, which pertained to refusal of prisoners to work and derived from prior Code § 12-1-10.

1.16.070 Escapes by prisoners.

Any inmate of the metropolitan jail or workhouse who shall escape therefrom shall be liable not only for confinement for the period remaining unexpired of his original sentence, but shall also be guilty of a misdemeanor or a felony. (Ord. BL2012-261 § 5, 2012; prior code § 12-1-9)

1.16.080 Fee for inmate's personal items.

A. The metropolitan jail or workhouse administrator shall charge inmates a fee for items issued to them upon admission to the county jail or workhouse. This fee may not exceed the actual cost of the items issued. This county jail or workhouse administrator may deduct the amount owed from the inmate's jail trust account or any other account of fund established by or for the benefit of the inmate.

B. The metropolitan jail or workhouse may not deny an inmate clothing or hygiene items if the inmate is unable to pay for them. An inmate's inability to pay shall be determined based on the policies and procedures of the Davidson County sheriff's office. (Ord. BL99-51 § 1, 1999)

Chapter 1.20

REGISTRATION OF CONVICTS

Sections:

1.20.010	**Registration of certain persons required when—Information required.**
1.20.020	**Change of address—Notification requirements.**
1.20.030	**Failing or refusing to register—Giving false information.**
1.20.040	**Restoration of citizenship.**

1.20.010 Registration of certain persons required when—Information required.

A. Every person who has been convicted or who may hereafter be convicted in any federal court or the court of any state of the crime of counterfeiting, grand larceny, embezzlement, forgery, obtaining money or property by false pretenses, burglary, felonious assault, robbery, arson, murder, rape, kidnapping, extortion, violation of any law prohibiting the carrying of deadly or concealed weapons, or violations of any provision of any national or state law relating to the possession, sale or transportation of any narcotics, or has been convicted of attempting any one or more of such offenses, who resides in or who comes into Davidson County from any point outside Davidson county, whether in transit through the county or otherwise, shall report to the chief of police within forty-eight hours after his arrival within the county, and shall furnish to the chief of police, in a written statement signed by such person:

1. The true name and each other name or alias by which such person is or has been known;

2. A full and complete description of himself;

3. The name of each crime hereinabove in this section enumerated of which he shall have been convicted, together with the name of the place where each such crime was committed;

4. The name under which he was convicted and the date of the conviction itself;

5. The name, if any, and the location of such prison, reformatory or other penal institution in which he shall have been confined as punishment therefor, together with the location or address of his residence, stopping place or living quarters in Davidson County, and each one thereof, if any, or the address or location of his intended residence, stopping place or living quarters therein, and each one thereof, with a description of the character of each such place, whether a hotel, apartment house, dwelling house or otherwise, giving the street number thereof, if any, or such description of the address or location thereof as will so identify the same as to make it possible of location; and

6. The length of time for which he expects or intends to reside within Davidson County;

provided, that such registration shall not be required of any person who has been released from imprisonment for a period of ten years or more and who has not, subsequent to release, been convicted of the violation of any law of the United States or any state.

B. At the time of furnishing such information, such person may be photographed and fingerprinted by the chief of police and the photograph and fingerprints, if any, shall be made a part of the permanent record herein provided for. (Ord. 90-1339 § 1 (34-3), 1990; prior code § 34-2-6)

1.20.020 Change of address—Notification requirements.

In the event that any person specified in Section 1.20.010 shall change any such place of residence, stopping place or living quarters to any new or different place within Davidson County other than the place last shown in such report to the chief of police, he shall, within twenty-four hours after the making of such change, notify the chief of police in a written and signed statement of such change of address and shall furnish his new address and each one thereof in such written statement. (Ord. 90-1339 § 1 (34-4), 1990; prior code § 34-2-7)

1.20.030 Failing or refusing to register—Giving false information.

It is unlawful for any person required by any provision of this chapter to furnish any report or information:

A. To fail, neglect or refuse to make such report, or to furnish such information, photographs or fingerprints, or to fail, neglect or refuse to render or furnish the same within the time prescribed; or

B. To fail, neglect or refuse to furnish to the chief of police within such time any information, photographs or fingerprints required to be furnished by any provision of this chapter; or

C. To furnish any false, untrue or misleading information or statement relating to any information required to be made or furnished by any provision of this chapter. (Prior code § 34-2-8)

1.20.040 Restoration of citizenship.

Any person whose citizenship has been restored shall be exempted from the provisions of this chapter. (Prior code § 34-2-9)

Chapter 1.24

GENERAL PENALTY AND CITATIONS FOR VIOLATIONS

Sections:

1.24.020	**Summons issuance for sanitation, litter control and animal control violations.**
1.24.030	**Authority to issue citations—Enforcement procedures—Failure to answer a citation—Penalties.**
1.24.040	**Failure to pay or secure a fine—Commitment to workhouse.**
1.24.050	**Expungement of public records regarding violations.**

1.24.020 Summons issuance for sanitation, litter control and animal control violations.

A. All personnel of the metropolitan department of health who are assigned duties as enforcement officers, verified by job descriptions or otherwise in writing by the director of health in the areas of sanitation, litter control and animal control, and who are not empowered by Section 1.24.030 of this chapter to issue citations, are hereby authorized to issue ordinance summonses as provided by Tennessee Code Annotated, Sections 7-63-201, et seq., to any person they witness being or acting in violation of any ordinance, law or regulation of the metropolitan government. An ordinance summons shall be issued by leaving a copy with the offender, which ordinance summons must show the offense charged, the specific metropolitan code section or regulation involved, and the time and place for the offender to appear in court, and shall bear the signature of the offender evidencing service and agreement to appear in court.

B. The ordinance summons shall be treated by the court in the same manner as a citation in lieu of arrest, as provided in Section 1.01.030 of this code.

C. Should the offender refuse to sign the ordinance summons evidencing agreement to appear in court, the municipal enforcement officer may cause a summons to issue by the clerk of the metropolitan general sessions court, or seek the assistance of a metropolitan police officer or peace officer, who may issue a citation in lieu of arrest pursuant to Section 1.24.030 of this code.

D. Should the offender fail to appear for court after proper issuance and service of an ordinance summons, the metropolitan general sessions court shall issue a warrant for failure to appear, which shall be a separate offense. (Ord. 95-1329 § 2 (part), 1995; Ord. 89-832 § 1, 1989)

1.24.030 Authority to issue citations—Enforcement procedures—Failure to answer a citation—Penalties.

A. Whenever an employee of the metropolitan government is charged with enforcing a specific law, ordinance or code of the metropolitan government, including but not limited to enforcement personnel of the health department, board of parks and recreation, public works department, codes administration, fire marshal, traffic and parking commission, beer board and transportation licensing commission; such employees may issue citations for persons found to be violating the particular ordinances of the metropolitan code which the aforesaid employees are employed to enforce.

B. When any person is charged with an ordinance violation in the metropolitan government jurisdiction and an ordinance citation is issued to such person on such violation, it shall be the duty of the metropolitan court in which such case is set for trial to try the same without the issuance or service of a warrant upon such defendant, provided the defendant has signed a waiver on such citation agreeing to come to court and waiving the issuance and service of a warrant upon him.

C. Whenever a metropolitan government employee as described above in subsection. A. of this section, issues to a person cited for the violation of a metropolitan ordinance a citation to appear in court on a date and time specified, that person's failure to appear to answer the citation in court at the specified time shall constitute an additional offense, punishable by a fine of fifty dollars, and the court shall be authorized to issue a bench warrant based upon the person's failure to appear.

D. Any fine imposed under the provisions of this section shall be in addition to any fine imposed for violating any ordinance for which the person was originally cited to appear in court.

E. After the declaration of a state of emergency for all or a portion of Davidson County by any officer authorized to do so, the mayor may by written order appoint the employees of any metropolitan government department with existing citation authority under the Metropolitan Code of Laws to assist in the enforcement of orders issued by the chief medical director, including without limitation the issuance of citations for violations of such orders. (Amdt. 1 to Ord. BL2020-422 § 1, 2020; Ord. BL2020-422 § 1, 2020; Ord. BL2012-281 § 4, 2012; Ord. BL2010-793 § 2, 2010; Prior code § 12-1-17)

1.24.040 Failure to pay or secure a fine—Commitment to workhouse.

Upon the failure of any person to pay or secure any fine imposed by a judge of Division I, Division II or Division III of the metropolitan courts, he shall be committed to the metropolitan workhouse and there required to perform such manual labor as may be required of him until such fine is paid off at the rate provided for county workhouses in Tennessee Code Annotated, or any amendments thereto. No prisoner shall be discharged upon the act of insolvency nor before such fine has been worked out, fully paid or secured, or unless he is pardoned or paroled in accordance with the provisions of the Metropolitan Charter. (Prior code § 1-1-8)

1.24.050 Expungement of public records regarding violations.

A. When a person is charged with the violation of a metropolitan ordinance and it is determined not to prosecute the charge, or the charge is dismissed, either in the metropolitan general sessions court or on appeal, the court having jurisdiction of such previous action, upon petition of such person, may order that all public records concerning same shall be expunged.

B. When a person is found liable for violating a metropolitan ordinance, the court having jurisdiction of such previous action, upon petition of such person, may order that all public records concerning same shall be expunged if:

1. At the time of filing, the person has never been convicted of any criminal offense, including federal offenses and offenses in other states; provided, however, that any moving or non-moving traffic offense shall not be considered a criminal offense as used in this section;

2. At the time of the filing of the petition for expungement, at least five years have elapsed since the completion of the sentence imposed for the offense; and

3. The person has fulfilled all the requirements of the sentence imposed by the court in which the individual was convicted of the offense, including:

a. Payment of all fines, restitution, court costs and other assessments;

b. Completion of any term of imprisonment or probation;

c. Meeting all conditions of supervised or unsupervised release; and

d. If so required by the conditions of the sentence imposed, remaining free from dependency on or abuse of alcohol or a controlled substance or other prohibited substance for a period of not less than one year.

C. The clerk of the court where such public records are recorded shall remove and expunge such public records within a period of sixty days from the entering of the expungement order. (Amdt. 1 to Ord. BL2019-1517 § 1, 2019; Ord. BL2019-1517 § 1, 2019; prior code § 29-1-16.1)

Title 2

ADMINISTRATION

Chapters:

Division I. Council, Offices, Officers, and Departments

2.04 Metropolitan Council
2.08 Mayor
2.10 Office of Emergency Management
2.12 Metropolitan Trustee
2.16 Public Defender
2.20 Department of Codes Administration
2.24 Department of Finance
2.28 Fire Department
2.30 Department of Emergency Communications
2.32 Department of General Services
2.36 Health Department
2.38 Medical Examiner's Office
2.40 Department of Law
2.44 Police Department
2.48 Department of Public Works
2.52 Department of Water and Sewer Services
2.56 Metropolitan Courts
2.60 Metropolitan Nashville Airport Authority
2.61 Office of Family Safety
2.62 Mayor's Office of Film and Special Events
2.63 Office of Homeless Services

Division II. Boards and Commissions

2.64 Organization and Operation of Boards and Commissions
2.68 Meetings of Boards and Commissions
2.72 Reserved

Division III. Boards

2.76 Board of Mechanical, Plumbing, and Electrical Examiners and Appeals
2.78 Board of Fair Commissioners
2.80 Board of Fire and Building Code Appeals
2.84 Reserved
2.88 Board of Property Standards and Appeals
2.92 Reserved
2.96 Metropolitan Safety Advisory Board
2.100 Metropolitan Transportation Licensing Commission
2.104 Urban Forester
2.106 Community Review Board
2.107 Farmers' Market Board

Division IV. Commissions

2.108 Metropolitan Action Commission
2.112 Metropolitan Nashville Arts Commission
2.114 Metropolitan Animal Care and Control Commission
2.116 Auditorium Commission

2.120 Charter Revision Commission
2.124 Reserved
2.128 Historical Commission
2.130 Historic Zoning Commission Staff
2.132 Metropolitan Human Relations Commission
2.136 Planning Commission
2.140 Public Records Commission
2.144 Metropolitan Social Services Commission
2.147 Nashville Entertainment Commission
2.148 Tourism and Convention Commission
2.149 Metropolitan Housing Fund Commission

Division V. Other Agencies and Bureaus
2.152 Metro Beautification and Environment Commission
2.153 Bicycle and Pedestrian Advisory Commission
2.154 Greenway and Open Space Commission
2.155 Nashville Sustainability Advisory Committee
2.156 Emergency Communications District
2.160 Community Education Commission
2.164 Metropolitan Nashville General Hospital
2.168 Metropolitan Highway and Transportation Safety Coordinating Council
2.172 Housing and Home Finance Agency Requirements
2.174 Reserved
2.175 Reserved
2.176 Gulch Central Business Improvement District
2.177 Downtown Central Business Improvement District (Downtown CBID)
2.178 South Nashville Central Business Improvement District (SONA CBID)
2.179 Midtown Central Business Improvement District (MBID)

Division VI. Other Programs and Policies
2.188 Report and Document Filing Policy
2.190 Electronic Formatting and Online Posting of Reports
2.196 Lobbyist Registration and Disclosure
2.198 Adopt-A-Street Program
2.202 Equipment Inspection Policy
2.206 Compliance with Metropolitan Code
2.210 Economic and Community Development Incentive Program
2.211 Workforce Development Program
2.212 Small Business Economic Development Incentive Grants
2.213 Affordable and Workforce Housing Incentive Grants
2.214 Effective Communication with Individuals with Disabilities in Metropolitan Government Programs and Services
2.215 Historic Preservation Grant Program
2.218 Metropolitan Employees' Consolidated Charities Program
2.222 Standards of Conduct, Disclosure of Interests, and Enforcement
2.224 Community Garden Grant Program
2.226 Tree Replacement and Protection on Certain Metro Properties
2.230 Sexual Harassment Awareness and Prevention Training
2.232 Bullying Prevention

Division I. Council, Offices, Officers and Departments

Chapter 2.04

METROPOLITAN COUNCIL

Sections:

Article I. Organization and Operations

2.04.010 President—Office established—Compensation.
2.04.020 Committee meetings.
2.04.030 Office.
2.04.040 Advertisement and notice concerning rezone hearings or urban renewal projects.
2.04.050 Approval of grants.
2.04.060 Approval of transit improvement program.
Article II. (Reserved)
Article III. (Reserved)

Article I. Organization and Operations

2.04.010 President—Office established—Compensation.

A. The position of president of the metropolitan council is hereby established. The holder of such position is vested with all rights given the vice-mayor by the Metropolitan Charter under Section 3.03, with the exception that the president of the metropolitan council shall be entitled to vote on all ordinances, resolutions and other issues before the metropolitan council.

B. The compensation for the office of presiding officer of the metropolitan council shall be the same as that established under Section 5.05 of the Metropolitan Charter for the position of vice-mayor.

C. When a vacancy occurs in the position of vice-mayor, then the metropolitan council shall, from one of its members, elect a presiding officer whose duties and salary shall be as set out in this section. (Prior code § 2-1-1)

2.04.020 Committee meetings.

A. Each committee of the metropolitan council shall hold its regular and special meetings in a suitable place in one of the buildings of the metropolitan government or may, if more convenient, hold such meetings in a building of some other governmental entity or agency, be it either state or federal. All meetings of committees of the metropolitan council shall be open to the public; provided, that when a committee of the council is investigating misconduct on the part of individual members of the metropolitan council, the testimony presented to the committee shall be open to the public, but the committee, when deliberating on the evidence as presented to the committee, shall be allowed to meet in executive session without members of the public present in order to determine the committee's recommendation to be made to the entire council.

B. Any report of the committee shall reflect how each member voted, with respect to the report or with respect to any action taken by the committee which is referred to in the report. (Prior code § 2-1-1.1)

2.04.030 Office.

A. There is created a metropolitan council office which shall be composed of such personnel, including clerical and secretarial personnel, either part-time or full-time, as may be authorized by the metropolitan council. The office shall provide research and advisory services to the council or any committee of the council upon request by the president of the council or upon request of any committee of the council. The duties of the office shall be limited to researching and advising the council or committee of the council on legislative matters. The office shall be responsible solely to the metropolitan council.

B. The annual operating budget of the council office shall be prepared and submitted as a part of the budget of the metropolitan council.

C. Members of the council office shall have full access to books, records and reports of all departments, boards, commissions and agencies of the metropolitan government. Such office however, shall exercise discretion to avoid unnecessary interference with the orderly work and responsibilities of other governmental officials, agencies and departments.

D. A special committee of the council, comprised of the chairmen of all standing committees and the president of the council, is authorized and directed to prepare plans for the organization of the office, to employ personnel, to secure suitable office space and supplies, to designate job specifications, and for such other matters as it may deem necessary and desirable for the orderly and efficient operation of the staff. The special committee shall submit its re-port and recommendations to the council for final approval.

E. Fiscal impact statements.

1. The metropolitan council office shall prepare a fiscal impact statement for all resolutions and ordinances on second and third reading, other than non-binding memorializing resolutions or ordinances amending Title 17 of the metropolitan code (zoning), that would:

a. Increase or decrease metropolitan government revenues;

b. Appropriate funds;

c. Increase or decrease existing appropriations; or

d. Increase or decrease the fiscal liability of the metropolitan government.

2. Such fiscal statement shall be provided to the full council at least forty-eight hours prior to consideration of the legislation by the council. Within twenty-four hours following a request by the sponsor of an amendment to any pending resolution or ordinance on which a fiscal note is required by this section, the metropolitan council office shall prepare for the sponsor a fiscal note showing what effect the amendment would have on the estimates made in the fiscal note applicable to the ordinance or resolution.

3. The fiscal note shall, if possible, include an estimate in dollars of the anticipated change in revenue, expenditures, or fiscal liability under the provisions of the ordinance or resolution. It shall also include a statement as to the immediate effect and, if determinable or reasonably foreseeable, the long-range effect of the measure. If, after careful investigation, it is determined that no dollar estimate is possible, the note shall contain a statement to that effect, setting forth the reasons why no dollar estimate can be given. The fiscal note statement shall include an explanation of the basis or reasoning on which the estimate is founded, including any assumptions involved.

4. No comment or opinion shall be included in the fiscal note regarding the merits of the measure for which the note is prepared; however, technical or mechanical defects may be noted. (Ord. BL2012-91, § 1, 2012; Ord. BL2001-695 § 1, 2001; prior code § 2-1-1.2)

2.04.040 Advertisement and notice concerning rezone hearings or urban renewal projects.

Advertisements of public hearings for rezoning ordinances or for plans for urban renewal projects shall be filed with the metropolitan clerk at least five days prior to filing with any newspaper of general circulation for publication. Further, the metropolitan clerk shall notify each councilman who represents a councilmanic district wherein the affected property is located of receipt of the proposed advertisement. (Prior code § 2-1-3.2)

2.04.050 Approval of grants.

All grant awards, requiring council approval may be approved by council through resolution. (Ord. BL2002-1186 § 1, 2002)

2.04.060 Approval of transit improvement program.

In order to adopt a transit improvement program under the meaning of Tennessee Code Annotated Section 67-4-3201, et seq., or any successor statute, the transit improvement program must be passed by an ordinance approved by the metropolitan council on third and final reading by a majority vote of all the members to which the council is entitled. (Ord. BL2017-939 § 1, 2017)

Article II. (Reserved)*

Article III. (Reserved)

*__Editor's note—__Ord. BL2007-1382, § 1, adopted June 5, 2007, repealed Art. II, §§ 2.04.050—2.04.100, which pertained to standards of council conduct, disclosure of interests, and enforcement and derived from Ord. BL2005-659 § 2, adopted 2005, as amended. The user's attention is directed to Ch. 2.222.

Chapter 2.08

MAYOR

Sections:

Article I. Powers and Duties

2.08.010 Acceptance and execution of certain easements and permits.
2.08.020 Agreements with tax-exempt institutions for payment of metropolitan government services.
2.08.030 Budget—Copies supplied—Contents.
2.08.040 Reserved.
2.08.045 Conditional signature and submission of grant applications.

Article II. Civil Emergencies

2.08.050 Definitions for Article II.
2.08.060 Proclamation of emergencies by mayor.
2.08.070 General curfew proclamation authority.
2.08.080 Mayor's powers and duties during proclaimed emergencies.
2.08.090 No limitation of freedom of speech or peaceful demonstrations.
2.08.100 Persons exempt from general curfew.
2.08.110 [Violation of a mayoral executive order during a civil emergency is a Class C misdemeanor.]

Article I. Powers and Duties

2.08.010 Acceptance and execution of certain easements and permits.

The mayor or, at his direction, the director of public property administration, the director of public works or the director of water and sewerage services, is authorized to accept and execute, on behalf of the metropolitan government, the conveyances of easements to the metropolitan government, permits to cross the property of others, and agreements relating thereto when necessary for the construction or development of any public project. (Prior code § 2-1-2)

2.08.020 Agreements with tax-exempt institutions for payment of metropolitan government services.

A. The mayor is authorized to appoint a person or persons who shall institute and carry out negotiations with those institutions or agencies which are exempt from taxation and which are receiving services such as fire protection, refuse collection or police protection from the metropolitan government. The mayor is further authorized to enter into contracts with such institutions or agencies with respect to the payments to be made by such agencies to the metropolitan government for the furnishing of these services. Such contracts may be for a period of years to be determined by the mayor, and shall be based upon the reasonable cost of furnishing such services to any tax-exempt institutions or agencies within the metropolitan government area and for which services are provided or available.

B. Those tax-exempt institutions or agencies entering into such contracts with the metropolitan government are exempt from any fees or service charges which may hereafter be levied by the metropolitan government for such services. (Prior code § 2-1-2.1)

2.08.030 Budget—Copies supplied—Contents.

The metropolitan mayor shall provide each member of the metropolitan council with a copy of the capital improvements budget by May 20th in the year in which the budget is to be approved by the metropolitan council. The capital improvements budget shall include an index to provide councilmen with a quick reference for each individual item proposed in the capital improvements budget. (Prior code § 2-1-2.2)

2.08.040 Reserved.

Editor's note—Ord. BL2020-449, § 1, passed Oct. 20, 2020, repealed § 2.08.0400, which pertained to professional services contracts for architectural or engineering services and derived from prior Code § 2-1-2.3.

2.08.045 Conditional signature and submission of grant applications.

A. The metropolitan mayor is authorized to sign and submit grant applications that are required to be but have not yet been submitted to the metropolitan council for approval so long as said signature is accompanied by a statement that "the application is contingent upon approval of the application by the metropolitan council, by resolution, at a regularly scheduled meeting to be held on [insert date of meeting]."

B. That after the mayor has signed the grant application, a resolution approving the application shall be filed as soon possible in accordance with the rules adopted by the metropolitan council.

C. That a representative of any department for the benefit of which a grant application was submitted in the manner described in subsection A of this section shall notify the grantor agency that the application was legally and officially authorized, if the resolution approving the application is adopted by the metropolitan council, or else shall withdraw the application if the resolution approving the application is not adopted by the metropolitan council. (Ord. 96-471 § 1, 1996)

Article II. Civil Emergencies

2.08.050 Definitions for Article II.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section.

Civil Emergency. A "civil emergency" is defined to be:

1. A riot or unlawful assembly characterized by the use of actual force or violence or a threat to use force if accompanied by the immediate power to execute by three or more persons acting together without authority of law.

2. Any natural disaster or man-made calamity, including but not limited to flood, conflagration, cyclone, tornado, earthquake or explosion within the metropolitan government area, resulting in the death or injury of persons, or the destruction of property, to such an extent that extraordinary measures must be taken to protect the public health, safety and welfare.

3. The destruction of property or the death or injury of persons brought about by the deliberate acts of one or more persons, acting either alone or in concert with others, when such acts are a threat to the peace of the general public or any segment thereof.

"Curfew" means a prohibition against any person walking, running, loitering, standing or motoring upon any alley, street, highway, public property or vacant premises within the metropolitan government area, except persons officially designated to duty with reference to such civil emergency or those lawfully on the streets as defined hereinafter. (Prior code § 2-1-115)

2.08.060 Proclamation of emergencies by mayor.

When, in the judgment of the mayor, a civil emergency is deemed to exist, he shall forthwith proclaim in writing the existence of same, a copy of which proclamation will be filed with the metropolitan clerk. (Prior code § 2-1-116)

2.08.070 General curfew proclamation authority.

After proclamation of a civil emergency by the mayor, he may order a general curfew applicable to such geographic areas of the metropolitan government or to the metropolitan government area as a whole, as he deems advisable, and applicable during such hours of the day or night as he deems necessary in the interest of the public safety and welfare. Such proclamation and general curfew shall have the force and effect of law and shall continue in effect until rescinded in writing by the metropolitan mayor, but not to exceed fifteen days. (Prior code § 2-1-117)

2.08.080 Mayor's powers and duties during proclaimed emergencies.

After proclamation of a civil emergency, the mayor may, at his discretion, in the interest of public safety and welfare, make any of the following orders:

A. Order the closing of all retail liquor stores;

B. Order the closing of all establishments wherein beer or alcoholic beverages are served;

C. Order the closing of all private clubs or portions thereof wherein the consumption of intoxicating liquor or beer or both is permitted;

D. Order the discontinuance of the sale of beer;

E. Order the discontinuance of selling, distribution or giving away of gasoline or other liquid flammable or combustible products in any container other than a gasoline tank properly affixed to a motor vehicle;

F. Order the closing of gasoline stations and other establishments, the chief activity of which is the sale, distribution or dispensing of liquid flammable or combustible products;

G. Order the discontinuance of selling, distributing, dispensing or giving away any firearms or ammunition of any character whatsoever;

H. Order the closing of any or all establishments or portions thereof, the chief activity of which is the sale, distribution, dispensing or giving away of firearms or ammunition, or both;

I. Issue such other orders as are necessary for the protection of life and property. (Prior code § 2-1-118)

2.08.090 No limitation of freedom of speech or peaceful demonstrations.

It is the intent of the metropolitan council not to limit peaceful demonstrations, freedom of speech or the lawful use of the streets, alleys and public property, except to the extent necessary to avert or control a civil emergency. (Prior code § 2-1-119)

2.08.100 Persons exempt from general curfew.

Any curfew imposed pursuant to this article shall not apply to persons lawfully on the streets and public places during a civil emergency who have obtained permission from the metropolitan chief of police, which permission shall be granted on good cause shown. Such a curfew also shall not apply to medical personnel in the performance of their duties. (Prior code § 2-1-120)

2.08.110 [Violation of a mayoral executive order during a civil emergency is a Class C misdemeanor.]

Any person violating the provisions of orders issued by the mayor during a civil emergency and pursuant to the authority of Tennessee Code Annotated, Title 38, Chapter 9 commits a Class C misdemeanor. This section shall expire and be null and void on October 1, 2023, unless extended by resolution of the metropolitan council. (Amdt. to Ord. BL2020-335 § 1, 2020; Ord. BL2020-335 § 1, 2020)

Chapter 2.10

OFFICE OF EMERGENCY MANAGEMENT*

***State law reference—**Emergency management agency, T.C.A. § 58-2-103 et seq.

Sections:

2.10.010	**Office established.**
2.10.020	**Duties of office.**
2.10.030	**Personnel.**
2.10.040	**Emergency support unit.**
2.10.050	**Emergency management council.**
2.10.060	**Interfering with emergency management officials unlawful.**
2.10.070	**"Nashville KNOWS" program.**

2.10.010 Office established.

There is hereby created the office of emergency management which shall be a division of the office of the mayor. All employees of this office, including the director of the office of emergency management and all other staff members, shall be under the management and control of the mayor. (Ord. 94-1074 § 1, 1994)

2.10.020 Duties of office.

The duties of the office of emergency management shall include, but shall not be limited to, the following: (1) to promote, coordinate, and direct a comprehensive emergency management program which addresses mitigation, preparedness, response and recovery relative to disasters and major emergencies; (2) to develop a basic emergency management plan, which shall be exercised and updated annually, in compliance with all applicable state and federal laws and regulations; (3) to provide public information, education, and promotion of mitigation activities; (4) responsible for water activities; (5) and other activities related to the establishment of a comprehensive emergency management program. (Ord. 97-927 § 1, 1997; Ord. 94-1074 § 2, 1994)

2.10.030 Personnel.

All employees of the office of the mayor assigned to this program as of the effective date of the ordinance codified in this chapter shall be transferred to the office of emergency management and shall continue to be in the unclassified service. (Ord. 94-1074 § 3, 1994)

2.10.040 Emergency support unit.

A. The emergency support unit (ESU) of the office of emergency management is created. The ESU shall be composed of volunteers to augment regular emergency management services provided by the office of emergency management during periods of actual or threatened emergencies, search and recovery operations, and public events.

B. The director shall be responsible for the supervision of the ESU and shall promulgate rules and regulations which will establish membership requirements, and the duties and responsibilities of its members. (Ord. 97-927 § 2 (part), 1997)

2.10.050 Emergency management council.

A. An emergency management council is created to advise and assist the office of emergency management in the administration of its duties including the development of an emergency management plan. This council shall be composed of representatives of each affected department, agency and commission of metropolitan government, as well as related volunteer, civic, business and industry representatives. These representatives shall be appointed by the director or department head of the affected department, agency or commission, or the management of the organization or business. All volunteer, civic, business and industry appointments shall be approved by the emergency management director. The members of the emergency management council shall serve without compensation and shall operate in an advisory capacity.

B. This council shall be chaired by the director and shall establish rules and subcommittees as necessary to advise, assist and otherwise promote comprehensive, community-wide involvement in emergency management. This council shall recommend appropriate policies and procedures for inclusion in the emergency management plan. (Ord. 97-927 § 2 (part), 1997)

2.10.060 Interfering with emergency management officials unlawful.

It is unlawful for any person to interfere with or hinder any officer or employee of the office of emergency management in the discharge or apparent discharge of his duties imposed by the provisions of this chapter. (Ord. 97-927 § 2 (part), 1997)

2.10.070 "Nashville KNOWS" program.

A. Using existing resources, the office of emergency management shall be responsible for the initiation and implementation of a program to be called "Nashville KNOWS." The "Nashville KNOWS" program shall be designed to maximize resources and efforts to prepare the citizens of Nashville regarding:

1. The steps to take in advance and in preparation of emergency situations; and

2. Responses and actions that should be taken in the event of various types of emergency situations.

B. The office of emergency management shall be the agency responsible for the implementation of the "Nashville KNOWS" program, which shall be focused on reaching out and informing Nashvillians about emergency response through, but not limited to, the initiation of a public relations campaign for the city, the conducting of neighborhood meetings at neighborhood sites, and the teaching of educational programs in the public schools.

C. The office of emergency management shall provide to the mayor and the members of the metropolitan council, on or before January 31 of each year, a report of its activities conducted in accordance with the provisions of this section during the preceding year. (Ord. BL2006-954 § 1, 2006)

Chapter 2.12

METROPOLITAN TRUSTEE

Sections:

2.12.010	**Bond for metropolitan trustee.**
2.12.020	**Storage of certain obsolete tax records—Duties and reports.**
2.12.030	**Metropolitan trustee to collect delinquent property taxes.**

2.12.010 Bond for metropolitan trustee.

A. The official bond of the metropolitan trustee is fixed at eight hundred thousand dollars.

B. In the event the bond of the metropolitan trustee in the amount fixed by this section shall at any time be less than the minimum amount of bond required by general law of the state for county trustees, then the metropolitan trustee shall make bond in the amount authorized by general law of the state. (Prior code § 15-1-1)

2.12.020 Storage of certain obsolete tax records—Duties and reports.

The metropolitan trustee is authorized and directed to store with the State Archives Division of the Tennessee State Library and Archives at Nashville any tax books and tax receipt books which are no longer required to be available to title companies, the general public or anyone else due to the date of which they are a record; provided, that the metropolitan trustee shall submit to the metropolitan council a report containing a description of those tax books and receipt books which have been turned over to the Archives Division of the Tennessee State Library and Archives, and the metropolitan clerk shall spread such report on the minutes of the metropolitan council. (Prior code § 15-1-2)

2.12.030 Metropolitan trustee to collect delinquent property taxes.

A. Pursuant to Section 6-55-101(b), Tennessee Code Annotated, the metropolitan trustee is directed to collect real and personal property taxes or tax equivalents and all merchants' ad valorem taxes, including all such delinquent taxes and any interest and penalties thereon. It shall then be the duty of the metropolitan trustee to collect said delinquent taxes.

B. The metropolitan trustee shall remit daily to the metropolitan treasurer, all taxes and penalty and interest collected under the provisions of this section, and furnish such reports, accounting, inventories, and other documentation consistent with generally accepted accounting procedures as may be required by the director of finance. The metropolitan trustee shall report the status of delinquent taxes filed for further legal action with the chancery court in a form approved by the director of finance.

C. The metropolitan trustee shall not receive a commission or other compensation for receiving and paying over such taxes, penalty and interest collected pursuant to this section, nor for providing reports and accounting pursuant to this section. (Ord. 96-299 § 1, 1996)

Chapter 2.16

PUBLIC DEFENDER*

***State law reference—**District public defenders, T.C.A. § 8-14-201 et seq.

Sections:

2.16.010 **Powers and duties—Restrictions.**

2.16.020 **Additional assistant public defender—Position created.**

2.16.030 **Additional assistant public defender—Qualifications.**

2.16.040 **Additional assistant public defender—Appointment and term—Criminal law practice restrictions.**

2.16.050 **Special assistant public defenders.**

2.16.010 Powers and duties—Restrictions.

A. The public defender shall render legal aid and defend only those indigent defendants who are in jail, charged with the commission of a crime and are unable to make bond, or such other defendants as a court with criminal jurisdiction shall determine to be indigent. In addition, the public defender shall provide guardian ad litem services when such services are deemed required by the Davidson County juvenile court for children who are the subject of proceedings in such court and the metropolitan government would be required by law to pay reasonable compensation for such services if not provided by the public defender.

B. The public defender shall not prosecute any appeal of an indigent defendant where such person was not represented by the public defender at the original trial from which the appeal is being taken.

C. The public defender shall not represent any indigent defendant at any state of a habeas corpus proceeding not initiated by the public defender. (Ord. 97-999 § 1, 1997; prior code § 2-1-41)

2.16.020 Additional assistant public defender—Position created.

There is created an additional assistant public defender as provided in Section 14.10 of the Metropolitan Charter. (Prior code § 2-1-42)

2.16.030 Additional assistant public defender—Qualifications.

The additional public defender shall be licensed to practice law in this state and shall be at the time of his appointment, and shall continue to be during the period of his service, a resident of the area of the metropolitan government. (Prior code § 2-1-43)

2.16.040 Additional assistant public defender—Appointment and term—Criminal law practice restrictions.

The additional assistant public defender shall serve at the pleasure of the public defender. Notice of his appointment or of revocation of the same shall be in writing and filed with the clerk of the criminal court. The additional assistant public defender may attend all criminal courts and discharge all the duties imposed by law on the public defender. The additional assistant public defender shall not engage in the private practice of criminal law during the period of his service, except to conclude matters pending when he was appointed. (Prior code § 2-1-44)

2.16.050 Special assistant public defenders.

A. The public defender is authorized to employ such additional attorneys, designated as special assistant public defenders, to aid him in the performance of the duties and responsibilities of his office within the limits of his annual budgetary appropriations for the office of the public defender, and each of these special assistant public defenders shall serve at the pleasure of the public defender.

B. Special assistant public defenders shall comply with all the qualifications of the public defender, as set out in Sections 14.10 and 14.11 of the Metropolitan Charter, and shall abide by all restrictions and limitations imposed upon the public defender by those same sections.

C. The public defender shall file a written notice of the appointment or revocation of all special assistant public defenders with the clerk of the criminal court. (Prior code § 2-1-46)

Chapter 2.20

DEPARTMENT OF CODES ADMINISTRATION

Sections:

2.20.010	**Department created—Organization and membership.**
2.20.020	**Powers and functions.**
2.20.030	**Director—Service as secretary of certain boards.**
2.20.040	**Director—Additional powers and duties.**
2.20.050	**Director—Determination of duties of sections and units.**
2.20.060	**Assignment of additional functions and personnel to department.**
2.20.070	**In-service training fund.**
2.20.080	**Employees—Conflict-of-interest restrictions.**
2.20.090	**Conflicts with civil service commission rules.**
2.20.100	**Building inspection staff.**
2.20.110	**Gas/mechanical inspection staff.**
2.20.120	**Plumbing inspection staff.**
2.20.130	**Metropolitan administrative hearing officer.**

2.20.010 Department created—Organization and membership.

There is hereby created a department of codes administration, which shall consist of the director of codes administration, and such other officers and employees as may be provided by ordinance or by the rules and regulations of the director of codes administration consistent therewith. The department of codes administration shall be organized into an enforcement section and an administrative staff section and any other divisions, sections or units as may be provided by ordinance or by the rules and regulations of the director consistent therewith. (Prior code § 2-1-20)

2.20.020 Powers and functions.

The department of codes administration shall have the power and its duty shall be to perform the following functions:

A. The enforcement of all laws, ordinances and regulations relating to electrical installations, building and construction, plumbing installations, gas/mechanical installations, the housing code and the zoning code and regulations;

B. To provide administrative staff services to the following boards:

1. Metropolitan board of fire and building code appeals,

2. Metropolitan board of plumbing examiners and appeals,

3. Metropolitan board of housing code appeals,

4. Metropolitan board of electrical examiners and appeals;

5. Metropolitan board of gas/mechanical examiners and appeals;

C. Perform such other duties as may be assigned to it by ordinance or by order of the mayor. (Ord. 90-1253 §§ 2, 3, 1990; prior code § 2-1-24)

2.20.030 Director—Service as secretary of certain boards.

The director of codes administration, or such member of his staff as he may designate shall serve as secretary of each of the boards listed in Section 2.20.020, and as such secretary he shall not have any vote, but shall keep the minutes and perform such other secretarial duties as may be necessary. (Prior code § 2-1-26)

2.20.040 Director—Additional powers and duties.

In addition to such other powers and duties as are otherwise provided in this code, the director of the department of codes administration shall have the power and his duty shall be to perform the following:

A. To be responsible for the day-to-day management of the department of codes administration, and to keep or cause to be kept a detailed record of all business of the department. Pursuant to the duties imposed upon him, the director shall prepare or cause to be prepared monthly reports on all activities of the department, including but not limited to:

1. All department receipts and expenditures,

2. The number and classification of all employees,

3. The number of permits issued under each code,

4. A tabulation of the number of inspections made and actions taken by the department by council districts, and

5. The number, by type, location, and date filed, of any and all complaints to the department by council districts;

B. The department shall provide, on a monthly basis, the reports listed in subsection (A)(4) and (5), to the respective member of the metropolitan council and shall provide, on a monthly basis, a complete set of reports listed in subsection (A)(4) and (5) to each councilmember-at-large.

C. To enforce, in the manner provided in this code, all laws, ordinances, codes and regulations as may be specifically assigned to the department of codes administration for enforcement, and to promulgate rules and regulations as may be deemed necessary for the effective enforcement of the same; provided, that all such rules and regulations promulgated by the director shall become effective upon written approval by the metropolitan mayor, and shall be reviewed by the department of law as to form and legality prior to submission of the same to the metropolitan mayor for approval.

D. Emergencies—Powers of Director. The decision of the director of codes administration shall be final in cases of emergency, without notice to the owner, which in his opinion involved imminent danger to human life or health. The director shall immediately cause such building, structure or portion thereof to be made safe or removed. For this purpose, the director may enter at once such building or structure or the premises upon which the same is located, or abutting land or structures, with such assistances and at such cost as he may deem necessary. He may vacate adjacent structures and protect the public by appropriate barricades or such other means as may be necessary, and for this purpose may close a public or private street, alley or means of egress.

E. Emergencies—Notification of Director—Responsibilities. In any case of emergency, the director of codes administration or his deputy shall be notified by the fire department, the police department or any other metropolitan department as may be deemed necessary, and he shall immediately proceed to the scene of any disaster caused by a calamity, flood, fire or any act of God and render assistance and post such notice as may be necessary to warn the general public of imminent or latent danger of collapse of any building, structure or appurtenance thereto cause by reason of such calamity, fire flood or act of God. The director may request and shall receive, so far as may be necessary in the discharge of his duties, the assistance and cooperation of other metropolitan officials. (Ord. BL2003-39 § 1, 2003; Ord. BL2002-1142 § 29, 2002; prior code § 2-1-27)

2.20.050 Director—Determination of duties of sections and units.

The director of codes administration shall determine the functions of the various sections and units of the department of codes administration. (Prior code § 2-1-33)

2.20.060 Assignment of additional functions and personnel to department.

The administrative and enforcement functions, duties and inspection staff personnel relating to all laws, ordinances and regulations in regard to miscellaneous industrial and commercial uses, water, sewer and gas installations, public gatherings and tourist camps, are hereby assigned to the department of codes administration. (Prior code § 2-1-25)

2.20.070 In-service training fund.

To provide for the development of the in-service training program and the in-service training plan, there is established an in-service training fund, which shall not exceed one percent of the total operating budget of the department of codes administration for any one fiscal year. The in-service training fund shall not be accumulative. Should there be a surplus in the fund at the end of any fiscal year, the next fiscal budget shall include only such funds as may be necessary to raise the total to the one-percent level. (Prior code § 2-1-34)

2.20.080 Employees—Conflict-of-interest restrictions.

A. No officer or employee connected with the department of codes administration, except one whose only connection is as a member of the board of building code appeals, shall be financially interested in the furnishing of labor, material, appliances for construction, repair, alteration or maintenance of a building, or in the design or making of plans or specifications therefor, unless he is the owner of such building. No such officer or employee shall engage in any work or conduct any business which is inconsistent with his duties or with the interests of the department.

B. No officer or employee of the department of codes administration shall be financially or otherwise interested in the furnishing of any labor, materials or appliances for the installation, alteration, repair or maintenance of any electrical, gas, mechanical plumbing installation or system, or in the making of any plans or the preparation of any specifications therefor, except in such instances where such officer or employee is the sole legal owner of the building or structure where such installation is to be made. (Ord. 98-1445 § 1, 1998; prior code § 2-1-32)

2.20.090 Conflicts with civil service commission rules.

Any provision of this division in conflict with the rules and regulation of the metropolitan civil service commission shall be of no effect, and the rules and regulations of the metropolitan civil service commission shall control. (Prior code § 2-1-35)

2.20.100 Building inspection staff.

A. The director of codes inspection, with the approval of the metropolitan mayor, shall appoint such officers, inspectors and inspector trainees as may be deemed necessary for effective enforcement of Chapters 2.80, 16.04, 16.08 and Chapters 16.28 through 16.56 of this code, as the same may be authorized by the metropolitan council and provided for in the operating budget of the department of codes administration, subject to the civil service provisions of the Metropolitan Charter.

B. No person shall be appointed to the position of senior building inspector, building inspector or building inspector trainee who has not met the employment standards established for such position and who has not successfully passed an examination for such position. (Prior code § 2-1-28)

2.20.110 Gas/mechanical inspection staff.

A. The director of codes administration, with the approval of the mayor, shall appoint such officers, inspectors and inspector trainees as may be deemed necessary for effective enforcement of this chapter, as the same may be authorized by the metropolitan council and provided for in the operating budget of the department of codes administration, subject to the civil service provisions of the Metropolitan Charter.

B. No person shall be appointed to the position of chief gas/mechanical inspector, gas/mechanical inspector or gas/mechanical inspector trainee who has not met the employment standards established for such position and who has not successfully passed an examination for such position. (Ord. 90-1253 § 4, 1990; prior code § 2-1-31)

2.20.120 Plumbing inspection staff.

A. The director of codes administration, with the approval of the mayor, shall appoint such officers, inspectors and inspector trainees as may be deemed necessary for effective enforcement of this chapter, as the same may be authorized by the metropolitan council and provided for in the operating budget of the department of codes administration, subject to the civil service provisions of the Metropolitan Charter.

B. No person shall be appointed to the position of senior plumbing inspector, plumbing inspector or plumbing inspector trainee who has not met the employment standards established for such position and who has not successfully passed an examination for such position. (Prior code § 2-1-29)

2.20.130 Metropolitan administrative hearing officer.

A. In accordance with Title 6, Chapter 54, Part 10 of the Tennessee Code Annotated, there is hereby created the Metropolitan Office of Administrative Hearing Officer to hear violations of any of the provisions codified in Title 16, Buildings and Construction, of the Metropolitan Code, and Title 17, Zoning, of the Metropolitan Code as amended from time to time. The utilization of the administrative hearing officer shall be at the discretion of the department of codes administration, and shall be an alternative to the enforcement provisions included in Title 16 and Title 17.

B. There are hereby created two administrative hearing officer positions to be appointed by the Metropolitan Council, who shall serve at the pleasure of the Metropolitan Council in accordance with T.C.A. § 6-54-1006(a). An administrative hearing officer shall be one of the following:

1. Licensed building inspector;
2. Licensed plumbing inspector;
3. Licensed electrical inspector;
4. Licensed attorney;
5. Licensed architect; or
6. Licensed engineer.

C. The amount of compensation for the administrative hearing officers shall be approved by the Metropolitan Council upon adoption of a Resolution receiving twenty-one affirmative votes.

D. Clerical and administrative support for the Office of Administrative Hearing Officer shall be provided by the department of codes administration.

E. Administrative hearing officers shall perform all of the duties and abide by all of the requirements provided in Title 6, Chapter 54, Part 10 of the Tennessee Code Annotated.

F. The Vice-Mayor shall appoint a special advisory committee to submit a list of persons to the metropolitan council that the committee deems best qualified to serve as administrative hearing officers. The special advisory committee shall include, but does not have to be limited to, the following:

1. The Director of the Department of Codes Administration or his/her designee;
2. The Director of Law or his/her designee; and
3. The Chair of the Council Codes, Fair, and Farmers Market Committee. (Ord. BL2017-789 § 1, 2017; Ord. BL2017-541 § 1, 2017; Ord. BL2011-912 § 1, 2011)

Chapter 2.24

DEPARTMENT OF FINANCE

Sections:

Article I. General Regulations

2.24.010 Department created—Divisions designated.
2.24.020 Director of finance—Powers and duties.
2.24.030 Budget officer.
2.24.040 Chief accountant.
2.24.050 Metropolitan treasurer.
2.24.060 Collections officer.
2.24.070 Purchasing agent.
2.24.080 Director of public property administration.
2.24.090 Payroll section, payroll supervisor and assistant payroll supervisor.
2.24.100 Reserved.
2.24.101 Reserved.
2.24.102 Reserved.
2.24.103 Title VI implementation plans and annual reports.

Article II. Department of Information Systems

2.24.110 Created—Transfer of functions.
2.24.115 Officers—Duties.
2.24.120 Consolidation of functions.
2.24.125 Recovery of costs.
2.24.130 Personnel.
2.24.135 Office of telecommunications—Created.
2.24.140 Office of telecommunications—Organization.
2.24.145 Office of telecommunications—Additional powers and responsibilities.
2.24.146 Website calendar for board and commission meetings.

Article III. Division of Public Property Administration

Part I. Organization and Operation

2.24.150 Composition of division—Salary of director.
2.24.160 Sections and other units—Establishment authority.
2.24.170 Sections and other units—Functions—Assignment of employees' duties.
2.24.180 Land acquisition and disposal—Standard procedures.
2.24.190 Inventory of public property and equipment.
2.24.200 Public property—Maintenance responsibility.
2.24.210 Public property—Leasing, rent collection, sale and disposal.
2.24.211 Billboard lease agreement restrictions.

Part II. Metropolitan Government Real Estate

2.24.220 Director of public property administration—Rule and regulation authority.
2.24.225 Appraisal report required for metropolitan council approval.
2.24.230 Leasing or subleasing conditions.
2.24.240 Acquisition of real estate.
2.24.250 Disposition of surplus property.

Article IV. Division of Metropolitan Audit

2.24.300 Division of metropolitan audit.

Article V. Relocation Assistance Program

2.24.370 Program established—Statutory authority.
2.24.380 Administering agency.

Article VI. Guaranteed Payment Plan for Superseded Pension Systems

2.24.470 Plan established.
2.24.480 Guaranteed payment account.

Article I. General Regulations

2.24.010 Department created—Divisions designated.

The department of finance of the metropolitan government is hereby created, as provided for in the Metropolitan Charter, Article 8, and shall consist of the division of budgets, the division of accounts, the division of collections, the division of treasury, the division of purchases, the division of public property administration and such other units as may be established by ordinance. (Prior code § 15-1-3)

2.24.020 Director of finance—Powers and duties.

The powers, duties and compensation of the director of finance shall be those set out Sections 8.102 and 8.103 of the Metropolitan Charter and as may be

provided by ordinance consistent with the Metropolitan Charter. (Prior code § 15-1-4)

2.24.030 Budget officer.

The powers, duties and compensation of the budget officer shall be those set out in Section 8.104 of the Metropolitan Charter and as may be provided by ordinance consistent with the Metropolitan Charter. (Prior code § 15-1-5 (a))

2.24.040 Chief accountant.

The powers, duties and compensation of the chief accountant shall be those set out in Section 8.105 of the Metropolitan Charter and as may be provided by ordinance consistent with the Metropolitan Charter. (Prior code § 15-1-5 (b))

2.24.050 Metropolitan treasurer.

The powers, duties and compensation of the metropolitan treasurer shall be those set out in Section 8.106 of the Metropolitan Charter and as may be provided by ordinance consistent with the Metropolitan Charter. (Prior code § 15-1-5 (c))

2.24.060 Collections officer.

The powers, duties and compensation of the collections officer shall be those set out in Section 8.107 of the Metropolitan Charter and as may be provided by ordinance consistent with the Metropolitan Charter. (Prior code § 15-1-5 (d))

2.24.070 Purchasing agent.

The powers, duties and compensation of the purchasing agent shall be those set out in Sections 8.108, 8.109, 8.110 and 8.111 of the Metropolitan Charter and as may be provided by ordinance consistent with the Metropolitan Charter. (Prior code § 15-1-5 (e))

2.24.080 Director of public property administration.

The powers and duties of the director of public property administration shall be those set out in Section 8.112 of the Metropolitan Charter and as may be provided by ordinance consistent with the Metropolitan Charter. The salary attendant to this position shall be as prescribed in the pay plan set up by the civil service commission and approved by the mayor and the metropolitan council. (Prior code § 15-1-5 (f))

2.24.090 Payroll section, payroll supervisor and assistant payroll supervisor.

A. In the department of finance, division of accounts, a payroll section is created, headed by a payroll supervisor, who shall be responsible for the preparation of the metropolitan government payrolls and the issuance of all payroll checks. All payroll checks shall be signed by the payroll supervisor and the metropolitan treasurer.

B. In the payroll section, there is created the position of assistant payroll supervisor, who is authorized to act in the absence of the payroll supervisor.

C. The salaries attendant to these two positions shall be as prescribed in the pay plan set up by the civil service commission and approved by the mayor and the metropolitan council. (Prior code § 15-1-6)

2.24.100 Reserved.

Editor's note—Ord. BL2007-1318, § 1, adopted March 20, 2007, repealed § 2.24.100, which pertained to internal audit section and chief auditor and derived from prior Code § 15-1-7.

2.24.101 Reserved.

Editor's note—Ord. BL2007-1318, § 1, adopted March 20, 2007, repealed § 2.24.101, which pertained to audit committee—Material submitted by director of finance and derived from Ord. 91-1587 § 1, 1991.

2.24.102 Reserved.

Editor's note—Ord. BL2007-1318, § 1, adopted March 20, 2007, repealed § 2.24.102, which pertained to audit procedures and guidelines and derived from Ord. 91-1587 § 2, 1991.

2.24.103 Title VI implementation plans and annual reports.

A. Each department, board, commission or agency of the metropolitan government subject to the requirements of Title VI of the Civil Rights Act of 1964, 42 U.S.C. § 2000d et seq., and regulations promulgated pursuant thereto, shall develop a Title VI implementation plan with participation by protected beneficiaries as may be required by law or regulations. To the extent applicable, such plan shall include Title VI implementation plans of any subrecipients of federal funds through such departments, boards, commissions or agencies. Each such department, board, commission or agency shall submit annual Title VI compliance reports and implementation plan updates to the director of personnel by June 30, 2005, and each June 30 thereafter. At least once each year, the director of personnel shall publish a cumulative report of the findings and recommendations concerning compliance with the requirements of this

section. The cumulative annual report shall be distributed to the mayor, each member of council, and the metropolitan clerk.

B. It is the legislative intent that any increased costs incurred by any department, board, commission or agency of metropolitan government as a result of the provisions of this section shall, to the extent legally available, be paid from federal funds available therefore. (Ord. BL2004-352 § 1, 2004)

Article II. Department of Information Systems

2.24.110 Created—Transfer of functions.

That the metropolitan department of information systems is established in place of the division of data processing. All functions hereto performed by the division of data processing shall be performed by the department of information systems. All positions currently within the division of data processing shall be transferred to the department of information systems. All functions relating to computer information systems or data processing conducted by the metropolitan government shall be reviewed and evaluated by the department of information systems to determine whether the functions are feasible and the availability of alternatives. (Ord. 93-687 § 2, 1993)

2.24.115 Officers—Duties.

The chief executive officer of the department of information systems shall be the information systems director, who shall be appointed by the metropolitan mayor and who shall serve at the pleasure of the metropolitan mayor. The information systems director shall, with the approval of the metropolitan mayor, establish divisions within the department of information systems and assign the functions, duties and goals of each division. Said director shall determine the staffing requirements of each such division and assign personnel in a manner consistent with the requirements and rules of the civil service commission of the metropolitan government and within the budget appropriation of said department. Said director shall review all proposed computer related purchases of the Metropolitan Government of Nashville and Davidson County and advise the purchasing agent or the requesting department whether the proposed purchase is appropriate for the need. (Ord. 93-687 § 3, 1993)

2.24.120 Consolidation of functions.

The information systems director shall devise a plan for consolidating the data processing functions and operations of the metropolitan government as economically as is feasible. Said plan shall include means and methods for preventing the unauthorized disclosure of any material or information which is not a matter of public record under the laws of Tennessee and/or which may otherwise be confidential by law. (Ord. 93-687 § 4, 1993)

2.24.125 Recovery of costs.

That the department of information systems shall utilize written charge-back procedures to recover costs from all users of its services, whether such user be a department, board or agency of the metropolitan government or any other public or private entity. A copy of such procedures will be filed in the office of the metropolitan clerk. The information systems director shall promulgate a policy for cost recovery of all data processing services which may be promulgated and used by any department of the metropolitan government which provides data processing services until consolidation of said services is complete. (Ord. 93-687 § 5, 1993)

2.24.130 Personnel.

That all positions and personnel in the department of metropolitan finance, division of data processing, created and performing functions pursuant to ordinance 83-1284, are transferred to the department of information systems, with no change in pay grade, classification or employee benefits. The information systems director shall appoint all additional officers and employees, subject to the civil service provisions of the metropolitan government as may be required to adequately staff the department. (Ord. 93-687 § 6, 1993)

2.24.135 Office of telecommunications—Created.

There is created an office of telecommunications as a subdivision of the department of information services. (Ord. 93-688 § 1 (part), 1993)

2.24.140 Office of telecommunications—Organization.

The office of telecommunications shall be under the control of the director of information services. The office of telecommunications shall be managed by the cable television franchise administrator, who shall be appointed by and under the supervision of the director of information services. (Ord. 93-688 §1 (part), 1993)

2.24.145 Office of telecommunications—Additional powers and responsibilities.

The office of telecommunications shall have the power, and its duty shall be, to perform the following functions:

A. Provide for the day-to-day administration and enforcement of all provisions of any and all cable communications system franchises which have been or may be issued by the metropolitan council;

B. Act as the responsible office of the metropolitan government in all matters pertaining to cable communication system franchises;

C. Provide technical programming and operational support to public agency users, such as metro department, schools and health care institutions, of such cable communications systems that may exist within Metropolitan Nashville and Davidson County;

D. Establish and approve procedures and standards for operations and services, use of dedicated channels, and expansion of available channels within guidelines included in legislation granting all such cable communications systems that may be authorized by the metropolitan council;

E. Receive and act upon complaints filed by citizens when such complaints have not been satisfactorily resolved by the grantee(s) of such cable communications system franchises as may be in operation within Metropolitan Nashville and Davidson County;

F. Provide any and all reasonable and appropriate assistance requested by citizen and community groups that may be formed to facilitate public access, as required by the Federal Communications Commission, to all cable communication systems that operate within Metropolitan Nashville and Davidson County;

G. Formulate and recommend to the director of information systems long-range telecommunications policy, and report to the director of information systems from time to time on the operations of cable communication systems within Metropolitan Nashville and Davidson County. (Ord. 93-688 § 1 (part), 1993)

2.24.146 Website calendar for board and commission meetings.

The department of information technology services shall construct and maintain an Internet website providing a calendar listing the date, time, location and agenda of all meetings of boards and commissions of the metropolitan government. Such calendar shall be updated on a weekly basis and shall be easily accessible from the nashville.gov website. Such information shall be posted in conformity with the policies adopted pursuant to Section 2.68.020 of this code. (Ord. BL2017-612 § 1, 2017; Ord. BL2004-373 § 1, 2004; Ord. BL2004-245 § 1, 2004)

Article III. Division of Public Property Administration

Part I. Organization and Operation

2.24.150 Composition of division—Salary of director.

The division of public property administration shall consist of a director of public property administration and such other officers and employees as may be provided in the manner hereinafter specified. The salary of the director of public property administration shall be the same as the salary of the other heads of divisions in the department of finance, as set out in Sections 8.104 through 8.108, inclusive, of the Metropolitan Charter. (Prior code § 15-1-9)

2.24.160 Sections and other units—Establishment authority.

The director of public property administration shall establish, by rules and regulations, such sections and other units as may be necessary to maintain the proper function and operation of the division of public property administration. (Prior code § 15-1-10)

2.24.170 Sections and other units—Functions—Assignment of employees' duties.

The director of public property administration shall prescribe, by rules and regulations, the functions of the various sections, units, officers and employees of the division, and he shall define and assign the duties and responsibilities of all of the employees of the division. (Prior code § 15-1-11)

2.24.180 Land acquisition and disposal—Standard procedures.

The director of public property administration shall, with the assistance and approval of the department of law, the director of finance and the metropolitan planning commission, establish standard procedures for acquiring and disposing of land for metropolitan departments, boards and commissions, exclusive of land acquisition for the Nashville Electric Service and the Nashville Housing Authority, and the rules and regulations by which such standard procedures are established shall be approved by resolution of the metropolitan council. (Prior code § 15-1-12)

2.24.190 Inventory of public property and equipment.

A. The director of public property administration shall maintain an inventory of public property and equipment. When such inventory is made, one copy thereof shall be filed in the office of the director of finance, one copy with the metropolitan clerk, one copy with the mayor, one copy with the metropolitan planning commission, and such additional copies with other public officials as the mayor may designate, so that the same may be made a part of the permanent records of the metropolitan government. The inventory shall be adjusted from time to time as additional properties are acquired or disposed of by the metropolitan government.

B. The director of public property administration shall provide each district councilmember with an annual inventory of real property owned by the metropolitan government located within their district. (Ord. BL2021-722 § 2, 2021; prior code § 15-1-13)

2.24.200 Public property—Maintenance responsibility.

The director of public property administration, subject to the supervision of the mayor, shall be responsible for the upkeep, repair and maintenance of all property, real and personal, belonging to the metropolitan government, excluding streets, bridges, sewers, sidewalks and related highway structures, and excluding the repair and maintenance of automotive equipment. (Prior code § 15-1-14)

2.24.210 Public property—Leasing, rent collection, sale and disposal.

The director of public property administration shall be responsible for the leasing, collection of rent from leases of public property, sale and disposal of all public property of the metropolitan government where not otherwise provided by ordinance. Any sales or leases of public property shall be subject to the approval of the metropolitan council. (Ord. BL2017-582 § 1, 2017; Ord. 96-308 § 1, 1996)

2.24.211 Billboard lease agreement restrictions.

A. The director of public property administration is directed to cancel all lease agreements providing for the erection and maintenance of billboards which leases have not specifically been approved by ordinance of the metropolitan county council.

B. No lease agreement or other instrument shall be entered into by the metropolitan government providing for the erection and maintenance of billboards on any property of the metropolitan government without the express approval of such agreement or instrument by the metropolitan council, by ordinance, any other provisions of the Metropolitan Code or ordinance of the metropolitan government to the contrary notwithstanding. (Amdt. 1 to Ord. 91-1524, 3/19/91; Ord. 91-1524 §§ 1, 2, 1991)

Part II. Metropolitan Government Real Estate

2.24.220 Director of public property administration—Rule and regulation authority.

The director of public property administration is authorized to make such rules and regulations consistent with law as he deems advisable for administering the provisions of this article. (Prior code § 2-1-105)

2.24.225 Appraisal report required for metropolitan council approval.

A. For transactions involving the sale, lease, sublease, or other disposition of real property which require approval of the metropolitan council, authorizing legislation may not be considered by the council in the absence of an appraisal report that includes, without restriction, the following components: (a) a current value; and (b) a prospective value reflecting any anticipated changes in entitlements including, without limitation, changes in zoning classifications, use restrictions, and/or deed restrictions. For purposes of this section, Restricted Appraisal Reports, Restricted Use Reports, or Summary Appraisal Reports shall not satisfy this requirement.

B. For transactions involving the purchase, exchange, or other acquisition of real property which requires approval of the metropolitan council, authorizing legislation may not be considered by the council in the absence of an Appraisal Report that includes a current value. For purposes of this section, Restricted Appraisal Reports, Restricted Use Reports, or Summary Appraisal Reports shall not satisfy this requirement.

C. The provisions of this section shall not apply to the appraisal or valuation of real property acquired pursuant to a delinquent tax sale grant that is to be conveyed to a nonprofit organization under Tennessee Code Annotated § 7-3-314(e). No appraisal or valuation is needed for real property conveyed pursuant to Resolution No. RS2019-1861.

D. All appraisal reports required by this section shall be prepared by an independent state certified real estate appraiser, as defined in T.C.A. § 62-39-102, or as the same may be hereafter amended, selected by the department of finance in accordance with applicable

procurement regulations. (Ord. BL2020-386 § 1, 2020; Ord. BL2019-42 § 1, 2019; Amdt. 1 to Ord. BL2018-1282 § 1, 2018; Ord. BL2018-1282 § 1, 2018)

2.24.230 Leasing or subleasing conditions.

A. No legislation approving the lease of metropolitan government-owned property, where the appraised land value is greater than one million dollars, to a private entity for a lease term of more than five years, including permitted extensions, shall be considered by the metropolitan council unless and until a publicly-noticed community meeting has been held. The director of public property administration may adjust the one million dollars threshold annually based upon the percentage increase, if any, by which the consumer price index for the most recent calendar year ending before the beginning of such year exceeds the consumer price index for all urban consumers published by the United States Department of Labor for the previous calendar year. Notice of the community meeting shall be posted on the metro website, and the proposed lessee shall be responsible for distributing the notice of the community meeting by U.S. Mail or email at least one week prior to the meeting to neighborhood associations and community organizations registered with the mayor's office of neighborhoods that are located within a one-mile radius of the property to be leased.

1. Notice by mail or e-mail. At least fourteen days prior to the first council consideration, the proposed lessee(s) of the subject property shall send written notice to all property owners within one thousand feet and, to identified neighborhood associations and community organizations located within a one-mile radius of the subject property. Neighborhood associations and community organizations shall include associations registered with the mayor's office of neighborhoods or incorporated condominium associations registered by with the metropolitan clerk. Such notice shall be sent by email if the property owner's, neighborhood association, or community organization's email address is known to the council member or lessee. Otherwise, such written notice shall be sent by U.S. Mail. Notice shall include the time, date and place of the required community meeting and of the council meeting.

2. Public notice signs shall be posted by the lessee in accordance with the following provisions on the subject property:

(a) General Requirements. Public notice signs shall be posted on any property subject to the community meeting provisions of this section. Public notice signs shall be installed by the proposed lessee of the property.

(b) Display Period. Public notice signs shall be installed on affected properties no less than fourteen days prior to an established community meeting date, and shall be removed by the lessee following conclusion of the council consideration.

(c) Number and Placement of Public Notice Signs. Public notice signs shall be posted according to the following standards:

i. Number. One sign shall be posted along each three hundred feet of public street frontage.

ii. Location. Whenever practical, signs shall be located within ten feet of a public street right-of-way and positioned in a manner to best inform the motoring public without creating a safety hazard.

iii. Size and Content. All public notice signs shall be of adequate size and design to be clearly visible and legible to the motoring public. At a minimum, a public notice sign shall specify the time, date and location of the scheduled community meeting and of the council meeting at which the lease is first to be considered, the general nature of the community meeting, and a phone number for additional information.

3. The council member in whose district the property is located shall coordinate the scheduling of the community meeting required by this section. The meeting shall be held either at a metropolitan government-owned facility, or at a facility selected by the district councilmember. The community meeting may also be held virtually using an online meeting platform if necessary to comply with applicable health orders. A representative from the metropolitan department, board, agency, or commission to whom the property is assigned shall attend the community meeting.

B. A copy of the lease or sublease agreement, including all terms and conditions thereof, shall be filed as a public record with the metropolitan clerk whenever the metropolitan government or any agency thereof leases or subleases real estate to a private individual, partnership, corporation or other private agency.

C. Whenever the lessee or sublessee of real estate leased from the metropolitan government or any agency thereof shall lease or sublease such real estate to another, the original lessee or sublessee shall file a copy of such lease or sublease as a public record with the metropolitan clerk within thirty days after receiving a certified copy of a resolution duly enacted by the metropolitan council requiring the filing of such lease or sublease, or within thirty days after receiving written notification from the mayor requiring the filing of such lease or sublease. A copy of such lease or sublease need not be filed as a public record, however, prior to ninety days after the signing of such lease or sublease without

the consent of all of the parties to such lease or sublease. (Amdt. 2 to Ord. BL2020-386 § 2, 2020; Amdt. 1 to Ord. BL2020-386 § 2, 2020; Ord. BL2020-386 § 2, 2020; prior code § 2-1-102)

2.24.240 Acquisition of real estate.

A. The director or other chief administrative official of any department, commission, board or agency of the metropolitan government, with the approval of the mayor, is authorized to acquire land on behalf of the metropolitan government, either by purchase or by condemnation, for use for public purposes in accordance with the procedures to be established as provided in Section 8.103(k) of the Metropolitan Charter.

B. Any land acquired by, or on behalf of the metropolitan government shall be paid for out of the unencumbered balance of any appropriation for such purpose, and an appropriation for the construction of any public project or extension thereof shall be considered as an authorization for the acquisition, by purchase or condemnation of any land necessary or convenient to effecting the purposes of the project.

C. In the event it becomes necessary or convenient to acquire any land, by purchase or by condemnation, under the authority of this section, the director or other chief administrative official of the department, commission, board or agency seeking to have land acquired shall make a request in writing to the mayor giving in detail the location of the land sought to be acquired, the purpose for the acquisition, and all other information which shall be required by the rules and regulations of the director of public property administration or by executive order of the mayor.

D. No land shall be acquired by or on behalf of any commission or board unless such acquisition has been authorized by a resolution of the commission or board, specifying in detail the land to be acquired, the public purpose or use for which the land is needed, and containing such other information as the commission or board may wish to include, or as may be required by the procedures established by rules and regulations of the director of public property administration or by executive order of the mayor.

E. When the mayor has approved a request for the acquisition of land, as provided by this section, he shall transmit the request with his approval to the director of public property administration, and the director of public property administration shall proceed to acquire the land, by purchase or by condemnation, in conformity with the procedures established by his rules and regulations in accordance with Section 8.103(k) of the Metropolitan Charter.

F. The mayor may delegate to the director of public property administration his authority to approve requests for the acquisition of land, and the director or chief administrative officer of any commission, board or agency who is dissatisfied with the disapproval of such request by the director of public property administration shall have the right to appeal such disapproval to the mayor for a decision.

G. The director of public property administration, with the assistance of the department of law and the metropolitan planning commission, shall establish standard procedures for acquiring land for metropolitan departments, boards and commissions, which standard procedures shall be in the form of rules and regulations approved by the mayor and filed with the metropolitan clerk as a public record. The director of public property administration shall prescribe by such rules and regulations the form and content of the request to the mayor for the acquisition of land as provided by this section, and he may provide for other forms and procedures consistent with this code and other ordinances and the Metropolitan Charter.

H. The provisions of this section relating to land acquisition shall not apply to land acquisition for the Nashville Electric Service and the Nashville Housing Authority, which agencies are excluded from such land acquisition procedures by Section 8.103(k) of the Metropolitan Charter, or to the Nashville Transit Authority, the land acquisition for which is provided for by Appendix Four to the Charter.

I. Prior to the adoption of an ordinance, on second reading, or a resolution, pursuant to Section 2.24.240.K of the Metropolitan Code, by the council authorizing the acquisition by purchase or condemnation of real estate to be utilized as a site for the construction of a new public school or relocation of existing public school, a public hearing shall be held on said legislation. The metropolitan clerk shall give notice in two newspapers of general circulation in the area of metropolitan government at least fifteen days but no more than thirty days prior to the public hearing and shall provide additional written notice of such hearing to the district member of council in whose district the property to be acquired is to be located and to all members of the metropolitan board of public education. In addition to such notice, the metropolitan planning commission shall cause signs to be posted on the site in the same manner and under the same conditions as provided in Article XV of Chapter 17.40 of the Metropolitan Code; provided, however, the wording shall clearly state the intended use rather than zoning provisions. Such public hearing shall be held in the council chambers; however, such hearing need not be held during a regular meeting of the council.

J. Notwithstanding any other provision of this section to the contrary, no land to be maintained as open space or to be used for recreational purposes having a purchase price in excess of two hundred thousand dollars shall be acquired unless and until the director of public property administration has obtained an appraisal from a 'state certified real estate appraiser', as defined in Tennessee Code Annotated Section 62-39-102 or as the same may be hereafter amended.

K. Where land in fee simple is being purchased for purposes, including school purposes, other than rights-of-way for highways, streets, roads, alleys, and other places for vehicular traffic, the director of public property administration or other officer of the metropolitan government shall negotiate for the purchase of such property and seek to obtain from the owner an option to sell to the metropolitan government at a fixed price, subject to the approval of the metropolitan council by resolution, and no purchase shall be consummated until it has been so approved by the metropolitan council. No such resolution relating to an option for property to be used for school purposes shall be approved until a public hearing has been conducted as provided in Metropolitan Code of Laws Section 2.24.240(I). (Ord. BL2024-468 §§ 1, 3, 2024; Ord. BL2013-577 § 1, 2013; Amdt. 1 to Ord. 95-1396, 5/16/95; Ord. 95-1396 § 1, 1995; prior code § 2-1-103)

2.24.250 Disposition of surplus property.

A. Whenever the director or other chief administrative officer of any department or agency, or when any board or commission, of the metropolitan government determines that real property of the metropolitan government in the custody of or used by such department, commission, board or agency is no longer needed or suited for its purposes, the board or commission, by resolution, or the director of a department or head of an agency, shall declare such real property surplus, and shall transfer it to the custody of the director of public property administration, but the insurance, maintenance and repairs of the property shall continue to be paid for out of the budget appropriation of the transferring department, commission, board or agency until the end of the fiscal year in which the transfer took place, or until the appropriation for such purposes has been transferred to the department of public property administration in the manner provided by Section 6.11 of the Metropolitan Charter, whichever event occurs first.

Notwithstanding the foregoing provisions in this section, any metropolitan government owned and operated home or facility for the care of children, as identified in Section 11.1102 of the Metropolitan Charter, shall not be transferred to the custody of the director of public property administration as surplus real property without the approval of the metropolitan council by resolution adopted by twenty-one affirmative votes.

B. The director of public property administration, in accordance with the procedures established by rules and regulations, shall make all surplus real property available to the departments, boards and commissions of the metropolitan government, and shall effect the transfer of such property to the department or other agency requesting its use.

C. 1. When surplus real property, other than school property, is not required by any department or other agency of the metropolitan government, the director of public property administration is authorized, with the approval of the metropolitan council, to sell such property, and the proceeds shall be deposited in the general fund of the district from whose operating budget the last department, commission, board or agency using the real property is financed. Prior to such approval, if the assessor of property values the property in excess of five hundred thousand dollars, the director of public property shall first obtain an independent appraisal from a "state certified real estate appraiser", as defined in Tennessee Code Annotated Section 62-39-102 or as the same may be hereafter amended. If the approval of the metropolitan council is required for the sale of such real estate, the authorizing legislation shall attach a copy of the appraisal and any other documents, drawings, illustrations, maps, or other written materials submitted to the metropolitan council for consideration regarding such sale.

2. When, in the judgment of the board of education, any property held by it is no longer suited or needed for school purposes, the board shall, by resolution, direct the director of public property administration to sell the property in accordance with the established rules and regulations relating to land disposition, subject to the approval of the metropolitan council and the mayor, and the proceeds from such sale shall be credited to the unappropriated school fund of the metropolitan government.

3. The foregoing provisions to the contrary notwithstanding, when any property held by the board of public education is not used for the purposes for which it was acquired or other educational purposes for eighteen months, such property shall automatically be restored to the board, commission, department or agency of metropolitan government which originally declared such property surplus to allow the transfer to the board of public education. Such transfer shall not require the assent of the board of public education.

D. The director of public property administration is authorized to lease real property of the metropolitan government held by him or her as surplus or unused property in accordance with such rules and regulations as he or she may establish consistent with this Code, other ordinances of the metropolitan government and the Metropolitan Charter, and upon approval by resolution of the metropolitan council.

E. The provisions of this section relating to land disposition shall not apply to the Nashville Electric Service or the Nashville Housing Authority, which agencies are exempt by Section 8.103(k) of the Metropolitan Charter, or to the Nashville Transit Authority, whose land disposition is provided for by Appendix Four to the Metropolitan Charter.

F. Notwithstanding Section 5.04.140 of the Metropolitan Code of Laws, when the director of public property administration determines that there is a parcel of property acquired through the delinquent tax-sale process established in Tennessee Code Annotated § 67-5-2501 et seq. and no department nor any affordable or workforce or any similar housing agency has any use for the parcel, the director is authorized, with the approval of the metropolitan council, to sell such property, and the proceeds shall be deposited into the Barnes Fund for Affordable Housing. Such proceeds shall not be construed as prohibiting other appropriations to the Barnes Fund separate from the annual operating budget ordinance of the metropolitan government from available revenue sources. This is intended to provide additional funding to the Barnes Fund above and beyond the annual funding provided in the operating budget each year.

G. Beginning January 1, 2018, any property owned by the Metropolitan Government of Nashville and Davidson County that is to be leased for a term greater than fifty years is required to be declared surplus pursuant to this section prior to the lease taking effect. (Ord. BL2024-468 § 2, 2024; Amdt. 1 to Ord. BL2021-970 § 1, 2021; Ord. BL2021-970 § 1, 2021; Ord. BL2018-1054 §§ 1, 2, 2018; Ord. BL2017-940 § 1, 2017; Amdt. 1 to Ord. BL2016-524 § 1, 2017; Ord. BL2016-524 § 1, 2017; Ord. BL2015-45 § 1, 2016; Ord. 2002-1024 § 1, 2002; Amdt. 1 to Ord. BL2000-517 § 1, 2001; prior code § 2-1-104)

Article IV. Division of Metropolitan Audit

2.24.300 Division of metropolitan audit.

A. There shall be, as an independent agency of the metropolitan government, a division of metropolitan audit, the director of which is designated as the metropolitan auditor. The metropolitan auditor shall be a person:

1. With a well founded reputation in government or public finance and the audit function as may be exhibited by a record of exceptional performance for at least five years as a financial officer of a government or business;

2. Who has, through education and experience as an accountant, auditor, CFO, controller or principal accounting officer of a governmental entity or private business an understanding of Generally Accepted Accounting Principles, Governmental Auditing Standards Board standards, financial statements, internal controls and procedures for financial reporting, and the audit functions of a governmental entity.

B. The metropolitan auditor shall be appointed by a majority vote of the council from a list of three persons recommended by the audit committee whom the audit committee deems best qualified and available to fill the position. If the council deems that the persons recommended by the audit committee to serve as metropolitan auditor are not suitable and/or qualified, the council shall reject the names submitted and the audit committee shall recommend three additional persons deemed qualified and available to fill the position. The metropolitan auditor shall serve a term of eight years but shall be subject to removal for cause during the term by a vote of four members of the audit committee. The first term of the metropolitan auditor will end on June 30, 2014, regardless of whether the full eight years has been served. A vacancy occurring during a term shall be filled temporarily with a qualified acting metropolitan auditor by the majority vote of the audit committee. The filling of the vacancy for the remainder of a term and for any new term shall be filled by a majority vote of the council through the process provided in this section. The compensation for the metropolitan auditor shall be established as part of the general pay plan provided by Section 12.10 of the Metropolitan Charter.

C. The metropolitan auditor shall conduct, or cause to be conducted financial, performance and other audit services following Government Auditing Standards established by the United States Government Accountability Office, and the metropolitan auditor shall follow the independent and other professional standards established and published under Government Auditing Standards.

D. The metropolitan auditor shall appoint and remove, subject to the civil service provisions of article 12 of this Charter, all officers and employees of the division.

E. There shall be a metropolitan audit committee which shall be composed of six members, as follows: The vice-mayor and the director of finance shall be members by virtue of their official positions. Two members of the metropolitan county council shall be selected by that body from its membership to serve a two-year term. One member shall be selected by the Nashville Area Chamber of Commerce to serve a four-year term. One member shall be selected by the Nashville Chapter of the Tennessee Society of Certified Public Accountants to serve a four-year term except that the member first selected shall serve a two year term. Members shall be eligible to succeed themselves. The General Provisions of Article 11, Chapter 1, of this Charter shall be applicable to the audit committee unless otherwise specified in this section.

F. The audit committee will oversee the annual audit plan, fix the compensation of the metropolitan auditor, and review and evaluate at least annually the performance of the metropolitan auditor.

G. All audit reports issued by the metropolitan auditor are public documents and shall at all times, during business hours, be open for personal inspection by any citizen of Tennessee.

H. Access to Records and Personnel. To the extent permitted by the Metropolitan Charter the division of metropolitan audit, with strict accountability for confidential and safeguarding records and information, shall have access to all metropolitan government's records, agreements, information systems, physical properties, and personnel. Such authority shall include but is not limited to, the ability to review, research, and conduct interviews, along with the ability to have access to any and all necessary documentation as described in this subsection. To the extent permitted by the Metropolitan Charter, all metropolitan government departments, boards, commissions, officers, agencies, or offices, along with all entities contracting with the metropolitan government shall co-operate fully with the metropolitan auditor during any such review or request to the fullest extent of applicable law. Any failure to cooperate with the metropolitan auditor shall be reported to the audit committee, finance director, director of law, and the metropolitan council.

I. Other Audit Services.

1. In addition to financial or performance services, the division of metropolitan audit shall establish a process by which suspected illegal, improper, wasteful, or fraudulent activity could be reported. The metropolitan auditor shall investigate, or cause to be investigated, all activity reported by this process. The disposition of all reports shall be communicated to the Metropolitan Nashville Audit Committee, Metropolitan Mayor, and Department of Law.

2. No employees of the metropolitan government or its agencies shall suffer any retaliatory action for reporting to or cooperating with the division of metropolitan audit or the audit committee as contemplated in T.C.A. 9-3-406 and T.C.A. 50-1-304.

3. It shall be the duty of employees of the metropolitan government or its agencies to report any known act of intentional illegal, intentional fraudulent, or intentional improper use of government funds.

J. Notice of Instance of Fraud, Waste, and Abuse. All reports of unlawful conduct completed in accordance with the State of Tennessee Local Government Instances of Fraud Reporting Act involving metropolitan government departments, boards, commissions, officers, or agencies shall be communicated in a timely manner to the metropolitan auditor. Such reports shall also be communicated to the office of the comptroller of the treasury if so required by state law.

K. Notice of Audit Activities. The engagement plans and final reports for all financial, performance, and other audit activities conducted on behalf of metropolitan government departments, boards, commissions, officers, agencies, or offices shall be communicated in a timely manner to the metropolitan auditor.

L. Scope of Services. To the extent permitted by the Metropolitan Charter the division of metropolitan audit is authorized to conduct financial audits, performance audits, or other audit services including investigation and disposition of reported incidents of fraud as contemplated above in subsection I of this section and the Metropolitan Charter, concerning any department, board, commission, officer, agency, or office of the metropolitan government which receives direct services from or to which funds are appropriated by the metropolitan government or for which the metropolitan government provides a guarantee for long-term indebtedness. Departments, boards, commissions, officers, agencies, and offices of the metropolitan government means those entities which encompass all of the governmental and corporate functions previously performed by Davidson County and the City of Nashville existing at the formation of the metropolitan government, and any public entity whose existence is created or authorized by the Metropolitan Charter or the metropolitan council.

(Amdt. 1 to Ord. BL2017-581 § 1, 2017; Ord. BL2017-581 § 1, 2017; Ord. BL2007-1318 § 2, 2007)

Article V. Relocation Assistance Program

2.24.370 Program established—Statutory authority.

The metropolitan government shall, upon adoption of this section and Section 2.24.380 [October 18, 1988], provide payments and assistance to eligible persons in the amounts and under the conditions set forth in the Uniform Relocation Assistance Act of 1972, as amended by Public Chapter 627, 1988 Acts of the Tennessee General Assembly; provided, however, that under no circumstances shall the metropolitan government or any department or agency thereof be required to provide payments or assistance in any amount under this section to persons displaced from dwellings or business as a result of building or zoning code enforcement activities or a program of rehabilitation of buildings. Any provision contained in this section to the contrary notwithstanding, the total amount of such payments, including moving expenses, shall not exceed the lesser of the amount of ten percent of the acquisition price or five thousand dollars. (Ord. 97-678 § 1, 1997; prior code § 2-1-3.10(a))

2.24.380 Administering agency.

The metropolitan development and housing agency ("MDHA") is designated as the agency with responsibility for administering the relocation assistance program established pursuant to this section. The metropolitan county mayor is authorized to enter into a contract or contracts with MDHA pursuant to which MDHA shall perform said responsibility for an amount not to exceed its actual reasonable expenses in administering the program. Upon the execution of such a contract or contracts, MDHA shall adopt rules, regulations and procedures consistent with the provisions of this section which, after being approved by the director of finance, shall be filed with the metropolitan clerk. This section is in no way intended to make the provisions of the Federal Uniform Relocation Assistance Act governing the acquisition of property binding on the metropolitan government. (Prior code § 2-1-3.10(b))

Article VI. Guaranteed Payment Plan for Superseded Pension Systems

2.24.470 Plan established.

A. Superseded system defined. "Superseded system" means any closed local city or county retirement plan, except any retirement plan closed after June 30, 1994. Superseded system further means any closed city teacher retirement plan, closed county teacher plan or closed local teacher retirement plan in existence prior to the effective date of this section.

B. Funding obligations of all superseded systems, including the funding of any unfunded accrued liabilities of the superseded systems, shall be determined in a manner so as to amortize the same over a period of time not to exceed thirty years from July 1, 2000. Any benefit improvements granted by the superseded systems shall be fully funded over the same amortization period established in this subsection. No benefit improvements shall be effective until funded by an additional appropriation. Appropriations made by the local legislative body to fund the obligations of the superseded systems pursuant to this act shall not be reduced for any year until all of the pension obligations of all of the superseded systems are fully amortized.

C. The metropolitan board of public education shall fund in its annual budget the actuarial contribution attributable to the aggregate benefits of all teachers covered under the superseded system established upon or after the establishment of the metropolitan government. The metropolitan government shall fund the actuarial contribution attributable to the aggregate benefits of all other superseded systems. The amounts necessary to fund such actuarial contributions shall be set forth in the annual budget adopted by the metropolitan council. (BL2000-337 § 1 (part), 2000)

2.24.480 Guaranteed payment account.

All funds appropriated by the metropolitan council for funding the obligation of the superseded systems shall be directly transferred to a guaranteed payment account by the chief accountant of the metropolitan government. The chief accountant shall transfer such amounts as may be necessary to pay the current pension obligations of the superseded systems to each respective system and shall transfer all remaining balances to the credit of the trust funds of the respective superseded systems in such amounts as are required to ensure that all liabilities are fully amortized as required in Section 2.24.470 of this code. (BL2000-337 § 1 (part), 2000)

Chapter 2.28

FIRE DEPARTMENT

Sections:

Article I. Establishment and Operation

2.28.020 General services district fire protection services.
2.28.030 Division of emergency ambulance and rescue service.
2.28.040 Ambulance operation rules and regulations.
2.28.050 Obedience to orders of emergency ambulance and rescue service personnel.
2.28.060 Emergency assistance policies and procedures.
2.28.070 Fire department positions.
2.28.080 Personnel rules and regulations—Purpose and applicability.
2.28.090 Personnel rules and regulations—Copies filed as public records.
2.28.100 Presentation of gun and badge to police-commissioned fire department retirees.
2.28.110 Recognition of citizens' organizations assisting fire department programs.
2.28.111 Use of the Department of Public Works' hazardous materials response vehicles for fire prevention, firefighting and the containment of hazardous materials.

Article II. Fire Marshal and Assistant Fire Marshal

2.28.120 Municipal fire prevention commissioner—Fire marshal authority.
2.28.130 Laws and ordinances—Enforcement authority.
2.28.140 Investigation of fires—Recordkeeping.
2.28.150 Inspection of buildings—Right of entry.
2.28.160 Police powers of fire marshal.
2.28.170 Orders to remedy dangerous conditions—Appeals.
2.28.180 Failure to comply with orders.
2.28.210 Assistant fire marshal—Right of entry for inspection.

Article III. Auxiliary Emergency Assistance Organization

2.28.220 Created—Membership qualifications.
2.28.230 Employment status of members.
2.28.240 Course of instruction.
2.28.250 Duties of members.
2.28.260 Access to vehicles.

Article I. Establishment and Operation

2.28.020 General services district fire protection services.

The functions of the metropolitan government to be performed, and the governmental services to be rendered throughout the entire general services district shall include fire protection. (Prior code § 16-1-1.1)

2.28.030 Division of emergency ambulance and rescue service.

A. There is created within the metropolitan fire department a division of emergency ambulance and rescue service for the purpose of providing emergency ambulance service to the citizens of the metropolitan government.

B. There is hereby imposed upon the metropolitan fire department the power to make all rules and regulations which the metropolitan fire department deems necessary for the proper and safe operation of any ambulance or ambulance operation, whether publicly or privately owned, which rules and regulations shall include, but not be limited to the type of vehicles required, the equipment necessary for each vehicle, the fees to be charged for the transportation of persons in such vehicles, the locations where ambulances are to be stationed, and the means of dispatching such ambulances and the number of vehicles required.

C. All rules and regulations promulgated by the metropolitan fire department for the operation of emergency ambulance service shall be approved by an advisory committee consisting of the metropolitan fire chief, chief of police, deputy fire chief emergency medical service, director of hospitals, director of finance, a representative from the Nashville Academy of Medicine, director of health, the president of the Nashville Fire Fighters Association, I.A.F.F. Local 763, the EMS division vice-president of the Nashville Fire Fighters Association, I.A.F.F. Local 763, vice-mayor, and a member of the metropolitan council's committee on health, hospitals and social services, or any of their designated represen-

tatives. Upon approval by the advisory committee, the rules shall be submitted to the metropolitan council for approval.

D. The dispatching of all metropolitan emergency ambulances shall be a function of the emergency ambulance section of the metropolitan fire department. It is hereby declared to be unlawful for any ambulance service to respond to any emergency call unless authorized to do so by the dispatcher for the emergency ambulance service. Any violation of this section shall be deemed a misdemeanor and, upon conviction, the person may be fined in an amount not exceeding fifty dollars.

E. In case of a disaster or holocaust, emergency ambulance service will be provided by the funeral directors to back up emergency ambulance service of the metropolitan fire department. In such case, ambulances of the funeral directors will be dispatched by the metropolitan fire chief or his designated representative. (Ord. 96-162 § 1, 1996; Ord. 95-93 § 1, 1995; Ord. 91-100 § 1, 1992; prior code § 16-1-2)

2.28.040 Ambulance operation rules and regulations.

The rules and regulations made by the department of fire for the proper and safe operation of any ambulance or ambulance operation, whether publicly or privately owned, and approved by the advisory committee set up and provided for in Section 2.28.030, are approved. (Prior code § 16-1-2.1)

2.28.050 Obedience to orders of emergency ambulance and rescue service personnel.

No person shall interfere with or wilfully fail or refuse to comply with any lawful order or direction of any employee of the division of emergency ambulance and rescue service while such employee is engaged in official business. This section shall apply only to those situations where the emergency medical technician is engaged in the care or transport of a patient. (Prior code § 16-1-2.2)

2.28.060 Emergency assistance policies and procedures.

A. The metropolitan government authorizes its departments to establish policies and procedures to be followed in requesting and responding to requests for emergency assistance in accordance with the Local Government Emergency Assistance Act of 1987, Public Chapter No. 155 (T.C.A. § 58-2-601 et seq.).

B. The policy and procedure of the metropolitan fire department, proposing the fire department's policy and procedures to be observed in requesting and responding to requests for emergency assistance is approved. (Prior code § 16-1-7)

2.28.070 Fire department positions.

Reserved.

2.28.080 Personnel rules and regulations—Purpose and applicability.

A. All rules and regulations of the department of fire pertaining to personnel shall protect such employment status as has been required by the provisions of the Charter of the Metropolitan Government, and nothing in such rules and regulations shall impair or diminish the rights and privileges of employees of the former City of Nashville or of Davidson County under the civil service provisions of the Charter of the Metropolitan Government.

B. Provided, further, that all rules and regulations of the department of fire pertaining to personnel shall protect such status as may hereafter be established by the provisions of the civil service rules and classification and pay plan of the metropolitan government, and nothing in such department's rules and regulations shall impair or diminish the rights and privileges of the employees who may hereafter have civil service status. (Prior code § 16-1-4)

2.28.090 Personnel rules and regulations—Copies filed as public records.

The director of fire shall cause certified copies of the rules and regulations of the department promulgated in accordance with the metropolitan government Charter and this chapter to be filed with the department of personnel and with the metropolitan clerk, and such rules and regulations shall be a public record. (Prior code § 16-1-5)

2.28.100 Presentation of gun and badge to police-commissioned fire department retirees.

The metropolitan fire department shall make a gift of a gun and badge to all retiring police-commissioned fire department employees who have at least twenty-five years of service upon their retirement. To be eligible to receive the gun and badge, the police-commissioned fire department employee must retire from active service, be in good standing, be eligible to receive a service pension, and have a minimum of five years of such service in a position in the fire department requiring a police commission. (Prior code § 16-1-6)

2.28.110 Recognition of citizens' organizations assisting fire department programs.

A. The fire chief of the metropolitan fire department is authorized to officially recognize nonprofit organizations within the metropolitan government area that assist the metropolitan fire department and its firefighters in fire prevention, fire detection and educational programs, and provide assistance beneficial to the metropolitan fire department and its firefighters. Any organization meeting the requirements as set out herein may be recognized by the fire chief and, if so recognized and in compliance with these requirements, may be entitled to the benefits hereunder.

B. The following regulations are adopted and set out for the requirements for recognition as provided in subsection A of this section:

1. The organization, in whatever form, must be not-for-profit;

2. No member of the organization may receive compensation for their services to the organization;

3. The organization may not receive any funding from the metropolitan government;

4. Membership in any such organization must be approved by the fire chief.

C. Any organization formed or approved in compliance with this section may be permitted to donate property or vehicles to the metropolitan government which are used in its programs or services. The metropolitan government shall provide insurance for or permit any such property or vehicles held in the name of the metropolitan government for such programs to be included in the metropolitan government's self-insurance programs.

D. Except as provided in subsection C of this section, and only for such purpose, no organization officially recognized by the fire chief shall be deemed to be an agency, board, department or commission of the metropolitan government, and no member shall be deemed to be an employee or official of the metropolitan government. (Prior code § 16-1-8)

2.28.111 Use of the Department of Public Works' hazardous materials response vehicles for fire prevention, firefighting and the containment of hazardous materials.

A. The Department of Public Works' hazardous materials response vehicles are authorized to perform on a first response emergency basis in furtherance of the metropolitan government's interests in fire prevention, firefighting and the containment of hazardous materials. The Department of Public Works' hazardous materials response vehicles are designated to be emergency repair vehicles for purposes of Section 12.32.070 of the Metropolitan Code of Laws and are expressly authorized to be equipped with lights that display a red light to the front of the vehicle. These vehicles are also expressly designated as "emergency firefighting vehicles" for purposes Title 55, Chapter 9, Section 402 of the Tennessee Code Annotated. Public Works shall be authorized to install, and operate red or white lights, or a combination of red and white lights, that display to the front of the hazardous materials response vehicles.

B. The provisions of this section shall not be construed to limit, abridge or otherwise abrogate any other requirement established by any other ordinance concerning the operation of emergency vehicles. However, should the provisions of this section conflict with any other section concerning the operation of emergency vehicles then this section shall prevail. (Ord. 99-1777 § 1, 1999)

Article II. Fire Marshal and Assistant Fire Marshal

2.28.120 Municipal fire prevention commissioner—Fire marshal authority.

The fire marshal shall be deemed a municipal fire prevention commissioner within the meaning of Tennessee Code Annotated, Section 68-102-108, and shall make such reports, perform such duties and have and exercise such powers as are conferred by the State Fire Prevention Law upon municipal fire prevention commissioners. (Prior code § 16-1-15)

2.28.130 Laws and ordinances—Enforcement authority.

It shall be the duty of the fire marshal to enforce within Davidson County (except for the city of Goodlettsville) all laws and ordinances relating to:

A. The prevention of fires;

B. The storage, sale and use of combustibles and explosives;

C. The installation and maintenance of automatic or other fire alarm systems and fire-extinguishing equipment;

D. The construction, maintenance and regulation of fire escapes;

E. The means and adequacy of exits, in case of fire, from factories, asylums, hospitals, places of worship, schools, halls, theaters, amphitheaters, and all other places in which numbers of persons live, work or

congregate from time to time for any purpose. (Ord. BL2017-654 § 1, 2017; Ord. BL2002-1142 § 1, 2002; prior code § 16-1-10)

2.28.140 Investigation of fires—Recordkeeping.

It shall be the duty of the fire marshal to attend fires occurring within Davidson County (except for the city of Goodlettsville), and to make investigation and ascertain the cause, origin and circumstances of all such fires. He shall keep records, in which he shall record the date of each fire, the place, the character of the building or structure, the name of the owner, lessee or occupant, the amount of loss caused by the fire, the amount of insurance carried on the building, the amount of insurance carried on stock or contents, the cause or origin of the fire, and any other fact ascertained in the course of his investigation, together with the names and addresses of any witnesses thereto. (Ord. BL2002-1142 § 2, 2002; prior code § 16-1-11)

2.28.150 Inspection of buildings—Right of entry.

Upon complaint of any person having an interest in any building or in property adjacent thereto, or without any complaint, the fire marshal shall have the right at all reasonable hours, for the purpose of examination, to enter into and upon all buildings and premises in the urban services district. (Prior code § 16-1-12)

2.28.160 Police powers of fire marshal.

The fire marshal and his designees shall have police powers within Davidson County. (Ord. BL2002-1142 § 3, 2002; prior code § 16-1-16)

2.28.170 Orders to remedy dangerous conditions—Appeals.

A. Whenever the fire marshal shall find any building or other structure within the county which, for want of repair or by reason of age or dilapidated condition, or for any cause, is especially liable to fire, and which is so situated as to endanger other buildings, structures or property, or whenever he shall find in any building or structure within the general services district, an improper or dangerous arrangement or condition of stoves, ranges, furnaces or other heating appliances of any kind whatsoever, including chimney, flues and pipes with which the same may be connected, or a dangerous condition or arrangement of lighting devices or system, or a dangerous or unlawful storage of explosives, petroleum, gasoline, kerosene, dangerous chemicals, vegetable products, fireworks, ashes, combustibles, inflammables, or refuse materials, or other conditions which, in his opinion, may constitute a dangerous fire hazard, or be liable to cause or promote fire or to create conditions dangerous to the emergency responders or to occupants of the building or to adjoining property, he shall serve an order in writing upon the owner, lessee, occupant or agent of the building for the dangerous condition or arrangement, specified and described in such written order, to be removed or remedied, within a time, not less than five days, to be designated in the order, and such order shall be within the designated time complied with by the owner, lessee and occupant or agent of such building; provided, that if the owner, lessee, occupant or agent deems himself aggrieved by such order, he may, before the next meeting of the Board of Fire and Building Code Appeals, from the service of such order, appeal to said board, by written petition addressed to the board who shall hear such appeal as soon as it can be conveniently heard, and who may make investigation and hear testimony of any witnesses, and issue subpoena for any witnesses, and who may, upon such hearing, either affirm, modify or revoke the order of the fire marshal. If the order of the fire marshal is affirmed or modified, such order so affirmed or modified shall forthwith be complied with by the owner, lessee, occupant or agent.

B. Every such order in writing issued and served by the fire marshal shall be dated and signed by him, and copies of such order shall be kept and preserved in an order record by the fire marshal.

C. Should the fire marshal determine that a change, addition or renovation of a privately owned building or structure is warranted to abate a fire hazard, he shall send written notice by return receipt certified mail to the owner of the building or structure. The fire marshal shall take no official action to require the change, addition or renovation until he has received return of the certified mail indicating that the owner of the property has received notice of the alleged dangerous condition. (Ord. BL2007-1390 § 1, 2007; Ord. BL2002-1142 § 4, 2002; prior code § 16-1-13)

2.28.180 Failure to comply with orders.

It is unlawful for any owner, lessee, occupant or agent of any building or premises to fail to comply with the written order of the fire marshal served upon him, or to fail to comply with such order of the fire marshal as affirmed or modified on appeal, as herein provided. (Ord. BL2002-1142 § 5, 2002; prior code § 16-1-14)

2.28.210 Assistant fire marshal—Right of entry for inspection.

The assistant fire marshal, in aiding and assisting the fire marshal in the discharge of the duties of fire marshal

under the ordinances of the metropolitan government and the law, shall have the right at all reasonable hours, for the purposes of examination, to enter into and upon all buildings and premises within Davidson county. (Ord. BL2002-1142 § 7, 2002; prior code § 16-1-19)

Article III. Auxiliary Emergency Assistance Organization

2.28.220 Created—Membership qualifications.

There is created the Auxiliary Emergency Assistance Organization of the metropolitan fire department, hereinafter referred to as "AEAO." Members of the AEAO shall be citizens of Davidson County that have filed an application with the chief of the fire department to be members of AEAO and that have completed such instructional course(s) as required by the fire chief. (Prior code § 16-1-31)

2.28.230 Employment status of members.

Members of AEAO shall be considered "employees" as provided under Tennessee Code Annotated, Section 29-20-107(d), but for that purpose only and no other, and then only when performing such duties as requested by the chief of the fire department. (Prior code § 16-1-35)

2.28.240 Course of instruction.

The fire chief shall establish a course(s) of instruction to be taken by all members of AEAO, designed to instruct such members as to the duties of AEAO members. Safety precautions to be observed by members and defensive driving courses for those members authorized to drive nonemergency equipment belonging to the fire department. (Prior code § 16-1-32)

2.28.250 Duties of members.

The duties of AEAO members shall be as set out below or as established by regulation of the fire chief:

A. Maintain additional safety clothing, such as gloves, hoods and boots, for use by firefighters when their clothing gets wet or is damaged;

B. Provide refreshments for firefighting personnel during resting periods at fire and other emergency scenes;

C. Provide an area for firefighters who become exhausted or overcome by heat and smoke to rest;

D. Service as a shuttle unit to transport firefighters to the fire scene at shift changes. (Prior code § 16-1-33)

2.28.260 Access to vehicles.

AEAO shall have access to and use of such nonemergency vehicles as maintained by the department and as authorized by the fire chief. AEAO shall not, at any time, be authorized to operate or run emergency equipment. (Prior code § 16-1-34)

Chapter 2.30

DEPARTMENT OF EMERGENCY COMMUNICATIONS

Sections:

2.30.010	**Department established.**
2.30.020	**Duties.**
2.30.030	**Director—Powers and duties.**
2.30.040	**Personnel.**

2.30.010 Department established.

There is hereby created the department of emergency communications, a department of the Metropolitan Government of Nashville and Davidson County. The department of emergency communications shall consist of a director, who is in the classified service and appointed by the mayor, as well as such other employees as may be deemed necessary, who shall also be in the classified service. All employees shall be subject to the rules and regulations of the civil service commission of the metropolitan government. (Ord. BL2016-237 § 1, 2016)

2.30.020 Duties.

The primary function of the department of emergency communications shall be the receiving of emergency telephone calls and the dispatching of appropriate personnel to best respond to the emergency at hand. It shall be the responsibility of the department to develop and implement an emergency service plan that is current with national best practices in the field of emergency dispatching. (Ord. BL2016-237 § 1, 2016)

2.30.030 Director—Powers and duties.

The director shall be responsible for the management of the department of emergency communications. The director shall supervise all employees of the department and will be the appointing authority of the department. (Ord. BL2016-237 § 1, 2016)

2.30.040 Personnel.

All employees in the department of emergency communications shall be in the classified service and shall have the salary and employee benefits provided by the pay plan and employment benefit system of the metropolitan government. (Ord. BL2016-237 § 1, 2016)

Chapter 2.32

DEPARTMENT OF GENERAL SERVICES

Sections:

2.32.010	**Created—Organization and membership.**
2.32.020	**Director—Powers, duties and compensation.**
2.32.030	**Department powers, functions and personnel.**
2.32.040	**Director—Determination of section and unit functions.**
2.32.050	**Mayor's authority to resolve controversies.**
2.32.060	**Use of metropolitan government vehicles.**
2.32.065	**Fleet electrification program.**
2.32.070	**Green building standards.**
2.32.080	**Renewable energy portfolio standard program.**

2.32.010 Created—Organization and membership.

There is created a department of general services, which shall consist of a director and such other officers and positions of employment as may be provided by the provisions of this chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72, or as may be subsequently provided by ordinance. (Prior code § 2-1-36)

2.32.020 Director—Powers, duties and compensation.

The director of the department of general services shall be responsible for and perform the executive functions of the department. (Ord. 90-1339 § 1 (2-8), 1990; prior code § 2-1-37)

2.32.030 Department powers, functions and personnel.

The department of general services shall have transferred to it the powers, functions and personnel as follows:

A. The functions, duties, powers, personnel and positions, records, personal property and equipment formerly vested in the motor pool section of the division of public property administration;

B. The functions, duties, powers, personnel and positions, records, personal property and equipment formerly vested in the maintenance section of the division of public property administration, which has heretofore been concerned with the care and maintenance of public buildings under its control and unless otherwise provided in this code, shall also be responsible for the erection, construction, equipping, maintenance and operation of all public buildings;

C. The functions, duties, powers, personnel and positions, records, personal property and equipment formerly vested in the equipment division of the public works department for the operation of garages and service centers for the repair of automotive equipment other than heavy equipment;

D. All control and supervision of mailing, central duplicating, printing and messenger services;

E. All control and supervision of storerooms services shall be vested in the purchasing agent of the metropolitan government. (Ord. 96-376 § 1, 1996; prior code § 2-1-38)

2.32.040 Director—Determination of section and unit functions.

The director of the department of general services shall determine the functions of the various sections and units. (Prior code § 2-1-39)

2.32.050 Mayor's authority to resolve controversies.

A. All questions and problems arising under this chapter concerning the status of employees transferred in accordance with this chapter and concerning the organization of the department of general services shall be determined by the mayor.

B. In case of controversy between two or more departments or agencies as to all matters and things involved in the transfer of functions, personnel, records, equipment or unencumbered balance of appropriations to the general services department, the mayor shall resolve such controversies in the manner in which he may direct. (Prior code § 2-1-40)

2.32.060 Use of metropolitan government vehicles.

A. For purposes of this section, the following definitions shall apply:

"Metro" means the Metropolitan Government of Nashville and Davidson County.

"OFM" means the Metropolitan Department of General Services, Office of Fleet Management.

"Agency" means a Metro agency, department, institution, board, bureau, authority, or elected official issued vehicles through OFM.

"Vehicle" means any self-propelled, rubber-tired unit capable of being licensed in the State of Tennessee for over the road travel.

B. Metro government-owned vehicles shall be used only for official business.

C. Unauthorized use. The following uses of Metro vehicles are prohibited:

1. Travel outside the geographical jurisdiction of metropolitan government without the proper administrative approvals.

2. Driving/operating a Metro vehicle while drinking an intoxicating beverage, or while under the influence of any drug, including alcohol, which impairs the employee's ability to safely operate said vehicle.

3. Transporting alcoholic beverages or illegal drugs of any kind, except as the same may be required for law enforcement purposes.

4. Any use for personal purposes, other than incidental.

5. Transporting family members, friends, associates or other persons who are not employees of Metro or serving the interest of Metro.

6. Attending sport events, including hunting and fishing, which are not in the service of Metro.

7. Transporting any political campaign literature or matter, or to engage in soliciting votes, or to transport any person or persons soliciting votes in any election or primary.

D. OFM shall have the authority to adopt additional rules and regulations consistent with this section pertaining to use and operation of Metro vehicles and equipment. (Ord. BL2011-938 § 1, 2011)

2.32.065 Fleet electrification program.

A. Within one hundred eighty days after the enacted date of this section, the metropolitan department of general services shall establish a fleet electrification program ("program") that shall require that all motor vehicles owned by the metropolitan government be zero-emission vehicles by the year 2050.

B. The transition to a zero-emission fleet will be phased-in as follows:

1. By 2025, 25% of the vehicles in the metropolitan government fleet shall be low-or-zero-emission vehicles.

2. By 2030, 25% of the vehicles in the metropolitan government fleet shall be zero-emission vehicles with at least 50% of the vehicles in fleet low-or-zero-emission vehicles.

3. By 2035, 50% of the vehicles in the metropolitan government fleet shall be zero-emission vehicles with at least 75% of the vehicles in fleet low-or-zero-emission vehicles.

4. By 2040, 75% of the vehicles in the metropolitan government fleet shall be zero-emission vehicles with at least 90% of the vehicles in fleet low-or-zero-emission vehicles.

5. By 2045, 90% of the vehicles in the metropolitan government fleet shall be zero-emission vehicles with at least 100% of the vehicles in fleet low-or-zero-emission vehicles.

6. By 2050, 100% of the vehicles in the metropolitan government fleet shall be zero-emission vehicles.

C. The department of general services shall have the authority to adopt additional rules and regulations consistent with this section. The department of general services shall further issue a report to the metropolitan council at least annually regarding the emission status of the vehicles in the metropolitan government fleet. This report shall be made available on the metropolitan government's website and the Metro Open Data Portal.

D. By January 1, 2022, and every two years thereafter, the metropolitan department of general services shall develop a greenhouse gas emissions reduction plan for its fleet. The plan shall include proposals on how to meet the above targets and goals for reducing emissions as well as cost estimates associated with the meeting the above targets and goals. The greenhouse gas emissions reduction plan shall be submitted to the metropolitan council.

E. Exemptions. This section shall not apply to any emergency response vehicles, such as ambulances, law enforcement vehicles, or fire trucks. The department of general services shall have the authority to exempt other types of vehicles for which low-or-zero-emission models are not feasible. The department shall reevaluate the feasibility of including emergency response vehicles or otherwise exempted vehicles in this program every five years after adoption of this ordinance and may include any or all previously exempted vehicles in the program. (Amdt. 1 to Ord. BL2019-1598 § 1, 2019; Ord. BL2019-1598 § 1, 2019)

2.32.070 Green building standards.

By July 1, 2020, the Department of General Services shall develop a strategic energy management plan for reducing energy and water use across metro-owned buildings. This strategic plan shall include elements for complying with the Equal Business Opportunity Program, found in Chapter 4.46 of the Metropolitan Code of Laws, to the fullest extent possible. The plan shall include timelines and cost estimates for implementing:

1. An energy retrofit program across at least 9% of metro government-owned buildings by square footage between 2021 and 2024, prioritizing buildings that have core systems and equipment nearing the end of their useful lives, with a goal of achieving at least 20% reductions in average energy and greenhouse gas emissions, as measured in BTUs; and

2. A LEEDTM Zero retrofit program across at least 12.5% of metro government-owned buildings by square footage between 2026 and 2032. Renewable energy certificates ("RECs") may be used as part of this retrofit program. (Amdt. 2 to Ord. BL2019-1599 § 1, 2019; Amdt. 1 to Ord. BL2019-1599 § 1, 2019; Ord. BL2019-1599 § 1, 2019)

2.32.080 Renewable energy portfolio standard program.

A. Definitions. The following definitions shall be used in this section:

1. "Solar energy" means radiant energy, direct, diffuse, or reflected, received from the sun at wavelengths suitable for conversion into thermal, chemical, or electrical energy, that is collected, generated, or stored for use at a later time.

2. "Tier one renewable source" means one or more of the following types of energy sources:

a. Solar energy;

b. Wind;

c. Methane from the anaerobic decomposition of organic materials in a landfill or wastewater treatment plant;

d. Geothermal;

e. Ocean, including energy from waves, tides, currents, and thermal differences;

f. Fuel cells producing electricity from a tier one renewable source under this paragraph; and

g. Raw or treated wastewater used as a heat source or sink for a heating or cooling system.

3. "Tier two renewable source" means one or more of the following types of energy sources:

a. Hydroelectric power other than pumped storage generation; or

b. Waste-to-energy.

B. The renewable energy portfolio standard for the metropolitan government shall be as follows:

1. In 2020, that the percentage of total carbon-free energy usage shall be not less than 53%, with not less than 20% from tier one renewable sources, not less than 2.5% from tier two renewable sources, and not less than 1% from solar energy;

2. In 2021, that the percentage of total carbon-free energy usage shall be not less than 55.7%, with not less than 22.5% from tier one renewable sources, not less than 3% from tier two renewable sources, and not less than 1.5% from solar energy;

3. In 2022, that the percentage of total carbon-free energy usage shall be not less than 58.4%, with not less than 25% from tier one renewable sources, not less than 3.5% from tier two renewable sources, and not less than 1.6% from solar energy;

4. In 2023, that the percentage of total carbon-free energy usage shall be not less than 61.1%, with not less than 27.5% from tier one renewable sources, not less than 4% from tier two renewable sources, and not less than 1.85% from solar energy;

5. In 2024, that the percentage of total carbon-free energy usage shall be not less than 63.8%, with not less than 30% from tier one renewable sources, not less than 4.5% from tier two renewable sources, and not less than 2.15% from solar energy;

6. In 2025, that the percentage of total carbon-free energy usage shall be not less than 66.5%, with not less than 35% from tier one renewable sources, not less than 5% from tier two renewable sources, and not less than 2.45% from solar energy;

7. In 2026, that the percentage of total carbon-free energy usage shall be not less than 69.2%, with not less than 40% from tier one renewable sources, not less than 5.5% from tier two renewable sources, and not less than 2.75% from solar energy;

8. In 2027, that the percentage of total carbon-free energy usage shall be not less than 71.9%, with not less than 45% from tier one renewable sources, not less than 6% from tier two renewable sources, and not less than 4% from solar energy;

9. In 2028, that the percentage of total carbon-free energy usage shall be not less than 74.6%, with not less than 50% from tier one renewable sources, not less than 6.5% from tier two renewable sources, and not less than 4.5% from solar energy;

10. In 2029, that the percentage of total carbon-free energy usage shall be not less than 77.3%, with not less than 55% from tier one renewable sources, not less than 7% from tier two renewable sources, and not less than 4.75% from solar energy;

11. In 2030, that the percentage of total carbon-free energy usage shall be not less than 80%, with not less than 60% from tier one renewable sources, not less than 7.5% from tier two renewable sources, and not less than 5.0% from solar energy;

12. In 2031, that the percentage of total carbon-free energy usage shall be not less than 82%, with not less than 65% from tier one renewable sources, not less than 8% from tier two renewable sources, and not less than 5.25% from solar energy;

13. In 2032, that the percentage of total carbon-free energy usage shall be not less than 84%, with not less than 70% from tier one renewable sources, not less than 8.5% from tier two renewable sources, and not less than 5.5% from solar energy;"

14. In 2033, that the percentage of total carbon-free energy usage shall be not less than 86%, with not less than 75% from tier one renewable sources, not less than 9% from tier two renewable sources, and not less than 6.0% from solar energy;

15. In 2034, that the percentage of total carbon-free energy usage shall be not less than 88%, with not less than 80% from tier one renewable sources, not less than 8% from tier two renewable sources, and not less than 6.5% from solar energy;

16. In 2035, that the percentage of total carbon-free energy usage shall be not less than 90%, with not less than 85% from tier one renewable sources, not less than 5% from tier two renewable sources, and not less than 7.0% from solar energy;

17. In 2036, that the percentage of total carbon-free energy usage shall be not less than 92%, with not less than 90% from tier one renewable sources, not less than 2% from tier two renewable sources, and not less than 7.5% from solar energy;

18. In 2037, that the percentage of total carbon-free energy usage shall be not less than 94%, with not less than 94% from tier one renewable sources, not less than 0% from tier two renewable sources, and not less than 8.0% from solar energy;

19. In 2038, that the percentage of total carbon-free energy usage shall be not less than 96%, with not less than 96% from tier one renewable sources, not less than 0% from tier two renewable sources, and not less than 8.5% from solar energy;

20. In 2039, that the percentage of total carbon-free energy usage shall be not less than 98%, with not less than 98% from tier one renewable sources, not less than 0% from tier two renewable sources, and not less than 9.0% from solar energy;

21. In 2040, that the percentage of total carbon-free energy usage shall be not less than 100%, with not less than 100% from tier one renewable sources, not less than 0% from tier two renewable sources, and not less than 9.5% from solar energy; and

22. In 2041 and thereafter, that the percentage of total carbon-free energy usage shall be not less than 100%, with not less than 100% from tier one renewable sources, not less than 0% from tier two renewable sources, and not less than 10% from solar energy.

C. If local capacity is available, metro should attempt to increase their share of ownership in community-based solar energy programs within Davidson County. The metropolitan government should further attempt to engage in available initiatives offered by NES to increase renewable energy sources above the target standards listed in subsection A when available.

D. The metropolitan government may use renewable energy certificates ("RECs") or other types of credits in order to meet the percentage required under the standards outlined in subsection B.

E. The department of general services shall develop and submit to the metropolitan council a strategic plan for achieving the renewable energy portfolio standard by July 1, 2020. The plan shall include cost estimates for implementation of the standards. The department of general services shall further issue a report to the metropolitan council at least annually regarding the renewable energy portfolio standards of the Metropolitan Government of Nashville and Davidson County which shall include the percentage of renewable energy usage by category and the RECs or credits, if any, in use. This report shall be made available on the metropolitan government's website and the Metro Open Data Portal. (Amdt. 2 to Ord. BL2019-1600 § 1, 2019; Amdt. 1 to Ord. BL2019-1600 § 1, 2019; Ord. BL2019-1600 § 1, 2019)

Chapter 2.36

HEALTH DEPARTMENT

Sections:

2.36.010 **Definitions.**
2.36.020 **Department powers and duties generally.**
2.36.030 **Consistency with federal and state law.**
2.36.040 **Liberal construction of provisions.**
2.36.050 **Computing ratios of personnel and facilities for numbers of persons.**
2.36.060 **Inspection—Premises providing services to children.**
2.36.070 **Inspection—Charitable institutions, jails and other metropolitan institutions confining persons.**
2.36.080 **Medicine for indigent persons.**
2.36.090 **Pauper burials.**
2.36.100 **Nuisances designated—Abatement authority.**
2.36.110 **Seizure, embargo, condemnation and disposal of prohibited materials.**
2.36.120 **Enforcement—Procedures other than prosecution or compulsory means.**
2.36.130 **Records and proceedings—Public inspection authorized when.**
2.36.140 **Review of decisions of the chief medical director.**
2.36.150 **Unauthorized reproduction or alteration of department documents.**
2.36.160 **False or misleading statements in documents or reports.**
2.36.170 **Tearing down or mutilating official notices.**
2.36.180 **Interfering with or obstructing department personnel.**
2.36.190 **Violation of orders prohibited.**

2.36.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Chief medical director" means the chief administrative officer of the board of health, or his designated representative.

"Department of health" means the department of health of the metropolitan government. Such term shall include the board and all of its agents, employees and activities. (Prior code § 20-1-1)

2.36.020 Department powers and duties generally.

A. The department of health may inspect any premises, matter or thing within its jurisdiction, including, but not limited to, any premises where an activity regulated by this chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72 is carried on, and any record required to be kept pursuant to this chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72.

B. In order to determine whether the provisions of this chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72 or provisions of other law which the department of health has the duty to enforce are being complied with, the department of health may investigate or authorize the investigation to be made of any matter, incident, thing, person or event within its jurisdiction, utilizing all of the investigative powers granted by the Metropolitan Charter.

C. Subject to the provisions of this chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72, or other applicable law, the department of health may take such action as may become necessary to assure the maintenance of public health, the prevention of disease, or the safety of the metropolitan government and its residents. The chief medical director, subject to the directions of the board of health, may establish procedures to be followed during an emergency declared by the board of health to insure the continuation of essential public health services and enforcement. Emergency procedures shall not be limited to the provisions of this chapter. Such procedure may include the reporting of births, fetal deaths and deaths when the normal procedures, as established by applicable law, cannot be met, but this provision does not relieve any person required to file such reports from complying with the appropriate requirements after the emergency period has passed. (Prior code § 20-1-2)

2.36.030 Consistency with federal and state law.

This chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72 are intended to be consistent with applicable federal and state law, and shall be construed, whenever necessary, to achieve such consistency. (Prior code § 20-1-17)

2.36.040 Liberal construction of provisions.

This chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72 shall be liberally construed for the protection of the health and safety of the people of the metropolitan government. (Prior code § 20-1-18)

2.36.050 Computing ratios of personnel and facilities for numbers of persons.

When, in this chapter or Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72 a requirement for personnel or facilities is expressed in terms of a ratio of at least so many personnel or so many facilities required for so many persons, places or things, and when the actual number of persons, places or things affected by the requirements is less than or is a fractional part of the number specified in the ratio, then the requirements shall apply also to such lesser number or fractional part of the number specified of such persons, places or things. (Prior code § 20-1-16)

2.36.060 Inspection—Premises providing services to children.

Without limitation of the department of health's general power to inspect pursuant to Section 2.36.020, a building, premises or other place where a child under sixteen years of age who receives care, instruction, education, recreation or other service while not under the supervision of a parent, stepparent or grandparent, may be inspected by the department of health at a reasonable time in order that the health and safety of children may be protected. (Prior code § 20-1-4)

2.36.070 Inspection—Charitable institutions, jails and other metropolitan institutions confining persons.

Without limitation of the department of health's general power to inspect pursuant to Section 2.36.020, the department of health shall inspect all charitable institutions and all jails and other institutions of the metropolitan government where sick, insane, destitute or other persons are confined. The department of health may cause any person convicted of violating any law or ordinance and who is confined or who is on parole to be examined as to the causes contributing to the delinquency, and shall make and keep a record of such examinations. (Prior code § 20-1-6)

2.36.080 Medicine for indigent persons.

A. The board of health is authorized and directed to establish a program for providing medicine to medically indigent persons residing within the boundaries of the metropolitan government, such program to be operated within the annual budget appropriation designated for this purpose, and to this end the board of health shall establish rules and regulations for the administration of this program, including rules governing the formulary of drugs to be provided and the method of establishing those entitled to the benefits of this program.

B. The director of finance is authorized to pay bills submitted to him for medicine furnished the medically indigent. Such bills shall be paid by the director of finance from the annual budget appropriation established for the medically indigent program, but no such bill shall be paid by the director of finance unless it is approved by the board of health or by an official designated by the board and authorized to review and approve such bills. (Prior code § 20-1-7)

2.36.090 Pauper burials.

The board of commissioners of the metropolitan social services is authorized and directed to establish a program for the burial of indigent persons residing within the boundaries of metropolitan government, such program to be operated within the annual budget appropriation designated for this purpose, and to this end the board of commissioners of the metropolitan social services shall establish rules and regulations for the administration of this program, including proper purchasing procedures consistent with the established purchasing procedures of the purchasing department of the metropolitan government and the method of establishing those entitled to the benefits of the program. (Prior code § 20-1-7.1)

2.36.100 Nuisances designated—Abatement authority.

A. No person shall commit or maintain a nuisance, as defined by statutory law, common law or equity, and no person shall allow such a nuisance to exist or be created in respect of any matter, thing, chattel or premises which he owns or controls. It shall be the duty of the chief medical director to inspect or cause to be inspected all lots, grounds, suspected cellars, premises, possession, streets, lanes and alleys within the metropolitan government area; and whenever he shall be of the opinion that any of such lots, grounds, suspected cellars, premises, possessions, street, lanes or alleys are in a state of nuisance or in such a condition that the existence of a nuisance thereon or therein is imminent and the health of the citizens endangered, he shall notify or cause to be notified, the owner or occupier of such lots, grounds, suspected cellars, premises or possessions, and the owner or occupier of the property fronting on such streets, lanes or alleys, or his agents, shall have such nuisance or the

cause of such nuisance removed and abated within a reasonable time prescribed in such written notice; and if the owner or occupier or his agents shall neglect or refuse to comply with the terms of such notice, the chief medical director, upon the expiration of the terms set out in the notice, is hereby empowered to remove such nuisance or cause of such nuisance, utilizing either the services of some agency of the metropolitan government or of some private agency, at the expense of such owner or occupier, their liability being joint and several.

B. The cost of removing such nuisance or the cause of such nuisance may be recovered by the chief medical director, in the name of the metropolitan government, from the owner or occupier, by suit if necessary. The chief medical director may cause the amount of the bill for removing such nuisance to be certified to the metropolitan trustee, and the same shall constitute a lien upon the property for which the expenditure is made, which lien may be enforced by suit in the chancery court, as are other similar liens.

C. In addition thereto, such owner or occupier, who shall neglect and refuse to comply with the terms and conditions of such notice, shall be guilty of a violation of this chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72.

D. In the event that such owner or occupier should feel aggrieved at any decision of the chief medical director in this regard, such aggrieved party shall, within seventy-two hours from receipt of the written notice for the abatement of the nuisance, file at the office of the board of health a written request for a hearing by the board, which request may be informal and need not set out the contentions of the aggrieved party. The board of health shall promptly hold a hearing to review the action of the chief medical director in this regard, and may affirm, amend or set aside such action. No implementation of the order of the chief medical director for the abatement of the nuisance shall be effected pending any hearing by the board of health.

E. Whenever any person shall be in actual possession of or have the charge, care or control of any property within the metropolitan government area, as executor, executrix, administrator, administratrix, trustee, guardian, agent or conservator, such person shall be deemed and taken to be the owner or owners of such property within the true intent and meaning of this chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72, and shall be bound to remove all nuisances from such property in the same manner and under the same penalties as if such person were actually the owner of such property, and notice to any such person of any order of the chief medical director shall be deemed and taken to be as good and sufficient notice as if such person were actually the owner of such property.

F. None of the remedies for the abatement of nuisances set out in this section shall be deemed to be exclusive, precluding the department of health from seeking an injunction in equity.

G. In determining a reasonable time to abate nuisances as set forth in subsections A through E of this section, the department of health shall give the property owner or occupier at least ten days to abate the nuisance, unless the nuisance poses an immediate serious threat to the health of the inhabitants of the property or surrounding property. "Immediate threat" shall be defined as a condition that will or is likely to cause serious physical injury to humans or animals. (Prior code § 20-1-8)

2.36.110 Seizure, embargo, condemnation and disposal of prohibited materials.

A. When, in the opinion of the department of health, a food, drug, device, cosmetic, article or thing is unfit for consumption or use, or is in a condition, or is of a kind, weight, quality or strength prohibited by this chapter, or is not labeled as required by this chapter, or contains false or misleading labeling, or is adulterated or misbranded or otherwise constitutes a danger or is prejudicial to the public health, the department of health may seize, embargo or condemn such material. The department of health may destroy, render harmless or otherwise dispose of all seized, embargoed or condemned material, or may direct the owner or person in control thereof to do so. When the department of health determines that embargoed material consists in part of materials which are not in violation of this chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72, and which may be salvaged, or that embargoed materials or any part thereof can be brought into compliance with this chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72, the department shall permit the owner or person in control, unless the public health otherwise requires, to separate the salvable portions, or to bring such materials into compliance with this chapter at the place of embargo, or other place acceptable to the department, in a manner directed by the department. When seized, embargoed or condemned material is disposed of by the department of health otherwise than by destruction, it shall be returned to the owner or person in control after it has been rendered harmless. All activities carried on pursuant to this subsection shall be done in a manner consistent with the maintenance of the public health, giving due regard to the property rights of the owner or person in control of the affected material.

B. Except where the public health requires immediate action, the department of health shall not seize, embargo, condemn, destroy, render harmless or otherwise dispose of any material pursuant to subsection A of this section until the owner or person in control is notified by an effective means of communication and is given an opportunity for a hearing before the board of health. Written notice of such a hearing shall be delivered by the department of health to the person affected not less than five days prior to the hearing. (Prior code § 20-1-3)

2.36.120 Enforcement—Procedures other than prosecution or compulsory means.

In lieu of enforcement of this chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72 by way of prosecution, recovery of civil penalties, revocation of permits, seizure, embargo and condemnation, and other compulsory means, the department of health may seek to obtain the voluntary compliance with this chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72 by way of notice, warning or other educational means. This section does not, however, require that such noncompulsory methods be used before proceeding by way of compulsory enforcement. (Prior code § 20-1-10)

2.36.130 Records and proceedings—Public inspection authorized when.

A. A person may inspect or authorize his attorney or representative to inspect a paper, file, record or proceeding of the department of health in which he has a personal right or interest. Application for inspection shall be made by submitting an affidavit to the department of health, describing the personal right or interest of the person. The attorney or representative of a person, in addition, shall submit proof of his authority. Inspection shall be permitted during such times and at such places as the department of health may prescribe.

B. This section does not authorize the inspection of any record or report which, pursuant to a provision of any law, is to be confidential, not subject to subpoena or inspection, or which is otherwise limited in its use or dissemination. (Prior code § 20-1-15)

2.36.140 Review of decisions of the chief medical director.

A. Pursuant to Item 4 of Section 10.104 of the Metropolitan Charter, the board of health shall hear and act upon complaints of persons affected by decisions of the chief medical director, and amend or set aside such decisions as are contrary to policies or regulations of the board. The concurring vote of three members of the board of health shall be necessary to amend or set aside any order, requirement, decision or determination of the chief medical director. Except in specific instances where a shorter period is specified, an appeal to the board of health shall be taken within thirty days after the date of the complained of action of the chief medical director. Such an appeal may be perfected by the filing of an informal written request for a hearing before the board. The aggrieved party shall be granted a public hearing before the board of health, and he may appear in his own behalf or be represented by counsel or agent. The aggrieved party's side of the matter shall first be heard, and subsequently, the chief medical director or other personnel of the department of health shall present their side, and both sides shall be permitted to introduce any relevant and competent evidence bearing on the issue.

B. Seven days' notice of the hearing before the board of health shall be sent by mail to the aggrieved party, unless in specific instances herein a shorter period is specified. Such notice shall be sent by registered mail to the address given by the aggrieved party in his request for a hearing.

C. The final disposition of any such complaint shall be in the form of a resolution, which shall affirm, amend or set aside the decision of the chief medical director. No request to grant a rehearing of such decision of the board of health shall be entertained unless new evidence is submitted which could not reasonably be presented at the previous hearing. If justifiable grounds for a rehearing exist, they shall be made known by a communication to the board of health presented to the board in written form, and if a motion to grant a rehearing shall receive three affirmative votes on the board, then the petitioner shall be notified to appear before the board on a date set by the board, of which he shall be notified. (Prior code § 20-1-9)

2.36.150 Unauthorized reproduction or alteration of department documents.

No person shall reproduce or alter, or cause to be reproduced or altered a permit, report, certificate or other paper issued by the department of health or any agent thereof, if the purpose of such reproduction or alteration is the evasion or violation of any provision of this chapter and Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72 or any other law. (Prior code § 20-1-14)

2.36.160 False or misleading statements in documents or reports.

No person shall make a false, untrue or misleading statement, or forge the signature of another, on a certificate, application, registration, report or other document required by the department of health. No person shall

make a false, untrue or misleading oral statement to the department of health as to any matter investigated by the department. (Prior code § 20-1-13)

2.36.170 Tearing down or mutilating official notices.

No person shall mutilate, obstruct, tear down or remove any notice of the department of health unless authorized to do so by the department of health or by this chapter or Chapters 6.16, 6.60, 10.04, 10.08, 10.12, 10.16, 10.20, 10.32 through 10.52 and 15.72. (Prior code § 20-1-12)

2.36.180 Interfering with or obstructing department personnel.

No person shall interfere with or obstruct department of health personnel in carrying out an inspection, survey or examination, or in the performance of any other duty for the department of health. (Prior code § 20-1-11)

2.36.190 Violation of orders prohibited.

It is unlawful for any person to violate an order of the board of health or of the chief medical director. (Prior code § 20-1-5)

Chapter 2.38

MEDICAL EXAMINER'S OFFICE

Sections:

2.38.010	**Office created.**
2.38.020	**Duties.**
2.38.030	**Personnel.**

2.38.010 Office created.

The medical examiner's office of the metropolitan government is established as a separate department of the metropolitan government. The medical examiner's office of the metropolitan government shall be under the management and control of the medical examiner of the metropolitan government. The medical examiner of the metropolitan government shall have the qualifications and be selected as provided in Tennessee Code Annotated Section 38-7-104. (Ord. 95-1449 § 1, 1995; Ord. 94-1055 § 1, 1994)

2.38.020 Duties.

The duties of the medical examiner's office of the metropolitan government shall include, but shall not be limited to: (1) investigate deaths that occur within the boundaries of the metropolitan government in accordance with Tennessee Code Annotated Title 38, Chapter 7, post-mortem examinations; (2) prepare reports on each case; (3) transmit copies of reports to the district attorney general and/or the investigating agency involved; (4) be available for and provide testimony as needed in all criminal courts in the metropolitan government on all cases accepted for investigation; (5) provide autopsies, as required to complete investigations, performing all services needed in the autopsy examination and providing a report to the division of post-mortem examinations; (6) retain toxicology samples for analysis by the appropriate investigating agency; (7) provide forensic science consultations with all law enforcement agencies within the boundaries of the metropolitan government, including all municipalities; (8) provide investigative consultation to all law enforcement agencies regarding all homicides and suspected homicides within the boundaries of the metropolitan government; (9) provide photographic documentation of all wounds, marks and scars that are of forensic significance on all cases examined; (10) retain for delivery to proper authorities all evidence obtained as a result of any examination or autopsy; and (11) perform any and all other functions needed in order to successfully complete the above duties and any other duties assigned by ordinance. (Ord. 95-1449 § 2, 1995; Ord. 94-1055 § 2, 1994)

2.38.030 Personnel.

All employees of the medical examiner's office of the metropolitan government, other than those hired pursuant to contract, shall be in the classified service as contemplated by the provisions of Article 12 of the Metropolitan Charter, and as administered by the metropolitan civil service commission. Current employees of the county medical examiner's office shall be transferred to the medical examiner's office of the metropolitan government, subject to the approval of the metropolitan civil service commission. (Ord. 95-1449 § 3, 1995; Ord. 94-1055 § 3, 1994)

Chapter 2.40

DEPARTMENT OF LAW

Sections:

Article I. General Regulations

2.40.010 Control of department—Metropolitan attorney powers and duties—Docket of suits.
2.40.020 Assistant metropolitan attorneys.
2.40.030 Court stenographer and brief printer.
2.40.040 Representation of metropolitan government outside metropolitan government area—Reimbursement for expenses.
2.40.050 Execution of bonds for costs, judgments and other actions.
2.40.060 Updating statutory references in metropolitan code of laws.
2.40.070 Eligibility for employment contracts—Term of contract.
2.40.080 Delinquent tax reports transmitted to department.
2.40.090 Division of tax litigation.
2.40.100 Settlement of claims against metropolitan government and its employees.
2.40.110 Settlement of claims for damage to metropolitan government property.
2.40.115 Reporting significant litigation and judgments.

Article II. Employee Defense and Indemnification

2.40.120 Employee defined.
2.40.130 Defense counsel to employees—Conditions and procedures.
2.40.140 Employee indemnification authorized when.

Article III. Risk Management

2.40.150 Direction—Functions and divisions designated.
2.40.160 Positions and personnel.
2.40.170 Appointment of employees.
2.40.180 Allocation of funds.
2.40.190 Powers, duties and responsibilities.
2.40.200 Administrative memorandums of understanding.

Article IV. Employee Safety Program

2.40.210 Creation of division of employee safety.
2.40.220 Appointment of employees.
2.40.230 Compliance with occupational health and safety standards.
2.40.240 Functions of division of employee safety.
2.40.250 Support of safety program.
2.40.260 Reports and recommendations on safety.

Article I. General Regulations

2.40.010 Control of department—Metropolitan attorney powers and duties—Docket of suits.

It shall be the duty of the metropolitan attorney, with the assistance provided for him, to take control of and appear for and represent the metropolitan government in all suits in any of the courts of record. He shall keep a docket of all suits, in which each case shall be entered by its proper title, the court in which it is pending, the names of all the parties, the nature and character of the case and such information as may be important to be known in regard thereto. He shall deliver such docket to his successor in office or, if there be no successor, to the mayor. (Prior code § 2-1-7)

2.40.020 Assistant metropolitan attorneys.

Two positions of assistant metropolitan attorney, in addition to the four positions of assistant metropolitan attorney created by Section 8.605 of the Metropolitan Charter, are created pursuant to Section 8.605 of the Metropolitan Charter. The metropolitan attorney is authorized to hire and appoint the two additional assistant metropolitan attorneys, subject to the approval of the mayor. (Prior code § 2-1-15)

2.40.030 Court stenographer and brief printer.

The metropolitan attorney is authorized to employ the services of a first-class stenographer or court reporter, whenever necessary, for the purpose of taking down in writing all evidence in any suit now pending or that may hereafter be brought against the metropolitan government or in which the metropolitan government is or may become a party, and likewise to take down any charge or order made or delivered by the court in such suits. The metropolitan attorney is likewise authorized to have briefs printed in any case wherein the metropolitan government is involved. Such stenographer or court reporter and such brief printer shall be paid his right and

just charges for the services he performs, out of the metropolitan government treasury, upon the presentation of a bill for his services, duly approved by the metropolitan attorney. (Prior code § 2-1-10)

2.40.040 Representation of metropolitan government outside metropolitan government area—Reimbursement for expenses.

It shall be the duty of the metropolitan attorney or one of his assistants designated by him to attend in person to any business of the metropolitan government to be transacted in court, or otherwise, beyond the limits of the metropolitan government area, and his traveling or other incidental expenses arising legitimately from such metropolitan government business shall be paid out of the metropolitan government treasury. (Prior code § 2-1-9)

2.40.050 Execution of bonds for costs, judgments and other actions.

The metropolitan attorney and the deputy metropolitan attorney are authorized to execute, on behalf of the metropolitan government, as principal, any and all bonds for costs, judgments, injunction bonds or any other bonds required to be made in connection with litigation in which the metropolitan government or its officers, commissions, boards or agencies are concerned in their official capacity. (Prior code § 2-1-8)

2.40.060 Updating statutory references in metropolitan code of laws.

The metropolitan attorney is authorized from time to time to update references to sections of Tennessee Code Annotated appearing in the Metropolitan Code of Laws when such sections are renumbered, such updated reference to be approved by resolution. (Ord. 90-1339 § 1(2-1), 1990; prior code § 2-1-8.1)

2.40.070 Eligibility for employment contracts—Term of contract.

A. All attorneys employed by the metropolitan government pursuant to Article 8, Chapter 6 of the Metropolitan Charter shall be eligible to contract with the metropolitan government for legal services subject to the qualifications and requirements of subsection B of this section.

B. Any attorney, as defined in subsection A of this section, shall meet the following qualifications to be eligible to contract with the metropolitan government for legal services:

1. Two years' practice in municipal law with the metropolitan government;

2. The attorney must receive the approval of the director of law, the mayor, and the metropolitan council. Approval by the metropolitan council shall be by resolution setting forth the terms and conditions of the contract. The contract authorized herein shall under no circumstances exceed two years in length.

C. This section shall apply only to attorneys of the metropolitan government as defined in subsection A of this section and shall not apply to private attorneys employed by the metropolitan council of the metropolitan government pursuant to Section 8.607 of the Metropolitan Charter. (Prior code § 2-1-15.2)

2.40.080 Delinquent tax reports transmitted to department.

It shall be the duty of the metropolitan trustee to transmit to the department of law a balanced and reconciled report of all real property taxes or tax equivalents due the metropolitan government for the general services district and the urban services district, which taxes or tax equivalents have become six months' delinquent. Prior to such transmittal, there shall be an internal audit by the division of accounts. (Prior code § 2-1-13)

2.40.090 Division of tax litigation.

A. There shall be a division of tax litigation, under the direction and supervision of the metropolitan attorney or such deputy or assistant as the metropolitan attorney, in his discretion, may direct.

B. It shall be the duty of the department of law, in and through the division of tax litigation, to obtain from the metropolitan trustee a balanced and reconciled report of delinquent real property taxes or tax equivalents of the general services district and the urban services district as otherwise provided in the Metropolitan Charter or by ordinance. In accordance with rules and regulations to be established by the metropolitan attorney, the department of law shall make every reasonable effort to collect such delinquent taxes or tax equivalents, and it shall be the duty of the department of law, in and through the division of tax litigation, to prepare and file all suits for the collection of delinquent real property taxes or tax equivalents due the metropolitan government for the general services district and the urban services district, and to proceed to collect such delinquent real property taxes or tax equivalents in accordance with the provisions of the Metropolitan Charter, together with such other authority as may be provided by the general law, private act or ordinance.

C. In the division of tax litigation, there shall be a chief clerk and such clerical assistants as the metropolitan attorney, with the approval of the mayor, may determine necessary. The back-tax clerk of the former county attorney shall be the first chief clerk of this division.

D. The personnel of the division of tax litigation shall, under the supervision of the metropolitan attorney, prepare the necessary court pleadings for tax suits, distress warrants, decrees and other documents necessary and proper for the prosecution of tax litigation and the maintenance of office records with regard thereto. (Prior code § 2-1-14)

2.40.100 Settlement of claims against metropolitan government and its employees.

The metropolitan attorney, after consultation with the applicable department head or delegee, is authorized to settle any property damage claim against the metropolitan government for an amount not to exceed twenty-five thousand dollars, and any other type of claim against the metropolitan government or any official, whether elected or appointed, officer, employee, or member of a board or commission of the metropolitan government who was acting on behalf of the metropolitan government for purposes of the claim, for an amount not to exceed twenty-five thousand dollars. (Amdt. 1 to Ord. BL2025-770 § 1, 2025; Ord. BL2025-770 § 1, 2025; Amdt. 1 to Ord. 96-154, 1/16/96; Ord. 96-154 § 1, 1996)

2.40.110 Settlement of claims for damage to metropolitan government property.

The department of law, after consultation with the applicable department head or delegee, is authorized to settle all claims for damages to metropolitan government property caused by the negligent or unlawful acts of others, for an amount not to exceed twenty-five thousand dollars. If the funds for any settlement come from the operating budget of the applicable department, notice shall be provided in writing to the department head. Upon settlement of such claims, the proceeds derived therefrom shall be paid into the metropolitan government treasury in accordance with the procedure established by the Charter or the director of finance pursuant thereto. (Amdt. 1 to Ord. BL2025-770 § 2, 2025; Ord. BL2025-770 § 2, 2025; prior code § 2-1-12)

2.40.115 Reporting significant litigation and judgments.

A. Quarterly report of significant litigation: Within sixty days after the end of each calendar quarter, for all suits in which an attorney in the department of law is counsel of record for the metropolitan government, or the department of law has hired or is supervising an outside attorney as counsel of record for the metropolitan government, the metropolitan attorney shall report to the metropolitan council if the suit includes claims being asserted against the metropolitan government that seek a total amount greater than three hundred thousand dollars. Each quarterly report shall include the names of the parties, the court in which the case is pending, the case number, the nature of the claims, the amount of damages sought, any other remedies being sought against the metropolitan government, and the name of counsel of record for the metropolitan government. If outside counsel is engaged in the matter, the report shall also include the hourly rate of the attorneys involved and the total amount of funding paid, including attorneys fees and expenses, as of the date the report is submitted.

B. Report of judgments entered against the metropolitan government: The metropolitan attorney shall report to the metropolitan council all judgments entered against the metropolitan government within sixty days after the date that the judgment becomes final. Such report shall include, but not be limited to, the names of the parties, the court in which the case is pending, the case number, the amount of the judgment, and a summary of the facts giving rise to the lawsuit.

C. Reports of environmental court cases:

1. The department of law shall provide a copy of the civil warrant docket of division IV of the metropolitan general sessions court ("environmental court") to the metropolitan council as soon as practicable upon its release. The docket shall include the name and address of each defendant and a description of all code violations, including the property address and date or dates of the code violations.

2. Within fifteen days of submission of any final environmental court orders, the department of law shall provide written notice to the metropolitan council of any fines in excess of fifty dollars issued to a defendant for violations of the Metropolitan Code of Laws. The notice shall include the name and address of the defendant, description and date or dates of the violations, and the amount of the fines. (Ord. BL2025-948 § 1, 2025; Amdt. 1 to Ord. BL2025-770 § 3, 2025; Ord. BL2025-770 § 3, 2025; Ord. BL2016-220 § 1, 2016; Ord. BL2004-428 § 1, 2004)

Article II. Employee Defense and Indemnification

2.40.120 Employee defined.

"Employee," as used in this article, means and includes any official, whether elected or appointed,

officer, employee, or any member of a board or commission of the metropolitan government. (Prior code § 32-1-85)

2.40.130 Defense counsel to employees—Conditions and procedures.

A. The metropolitan government authorizes its department of law to furnish defense counsel to any employee against whom a claim is asserted arising out of the employee's acts or omissions taken on behalf of the metropolitan government for purposes of the claim, provided the employee promptly notifies the department of law when suit is served upon the employee, makes a request to the department of law for defense counsel, cooperates with the defense counsel furnished, and has no insurance coverage protecting the employee from damages up to the amounts provided hereafter in this section.

B. In those civil actions wherein:

1. The metropolitan government and one or more of its employees are defendants, or two or more employees are defendants; and

2. The director of law determines that Rule 1.7 of the Tennessee Rules of Professional Conduct, as adopted by rule 8 of the Rules of the Tennessee Supreme Court, prohibits the department of law from representing the employee; and

3. The employee would otherwise be entitled to the defense provided for in subsection A of this section; then the employee shall be entitled to employ counsel as provided for in subsection C of this section.

C. In those matters wherein an employee meets the criteria for defense counsel in subsections A and B, the director of law shall authorize reimbursement to the employee of the reasonable fees and expenses incurred in the employee's defense, subject to any applicable regulations promulgated by the director of finance. The director of finance, in consultation with the director of law, shall promulgate regulations concerning reimbursement of fees and expenses, including, but not limited to, the hourly rate, the nature and timing of billing, and requirements for prior approval for extraordinary expenses. (Ord. BL2025-770 §§ 4, 5, 2025; Ord. BL2005-707 § 1, 2005; Ord. 93-578 § 1, 1993; prior code § 32-1-86)

2.40.140 Employee indemnification authorized when.

A. The metropolitan government is authorized to indemnify an employee from a judgment against the employee to an amount as provided hereafter if:

1. The judgment results from an act or omission of the employee taken on behalf of the metropolitan government;

2. The employee was furnished defense counsel at the metropolitan government's expense, and the employee has cooperated with that defense counsel;

3. The employee has no insurance coverage protecting the employee from damages up to the amounts provided hereafter in this section; and

4. The judgment results from a legal claim challenging conduct that did not constitute a flagrant violation of law or policy, as determined by the employee's department, board, commission, or agency head and the director of law, in their discretion.

B. The director of law and the head of the department, board, commission, or agency in which the employee is employed shall have the discretion to determine what amount, if any, an employee may be indemnified, subject to Section 8.103(e) of the Metropolitan Charter, but in no event shall such indemnity exceed two hundred thousand dollars for each person injured or property damaged in one incident or accident, and four hundred thousand dollars for all personal injuries and property damage in one incident or accident. (Ord. BL2025-770 §§ 6, 7, 2025; prior code § 32-1-87)

Article III. Risk Management

2.40.150 Direction—Functions and divisions designated.

A. The functions of the department of risk management, as set out in Ordinance 81-569, are placed under the department of law under the direction of the director of law. The functions previously performed by the department of risk management shall be divided into two divisions in the department of law:

1. The claims division; and

2. The insurance division.

B. The claims division shall be under the direction of the director of law or such attorney or attorneys in the department of law as he shall direct. The insurance division shall be under the direction of an individual appointed by the director of law, subject to the approval of the mayor, who shall have experience in the insurance field as determined by the job description for that position.

C. The head of the insurance division shall make his reports and recommendations to the metropolitan county mayor, such reports and recommendations being addressed to the metropolitan county mayor and forwarded to the metropolitan county mayor by the director of law. The two divisions shall consist of such employees as may be provided herein and allowed by subsequent budget appropriations. (Ord. 95-1446 §§ 1, 2, 1995; prior code § 2-1-15.3(a))

2.40.160 Positions and personnel.

All positions and personnel assigned to the department of risk management shall be transferred to the department of law on October 18, 1983, the effective date of this section. (Prior code § 2-1-15.3(b))

2.40.170 Appointment of employees.

The director of law shall appoint all employees to the two divisions. All clerical positions shall be civil service positions. All professional positions shall be non-civil service positions if so stated in the ordinance creating the position, otherwise such positions shall be civil service positions. (Prior code § 2-1-15.3(c))

2.40.180 Allocation of funds.

The director of finance and the budget officer are authorized to provide, as a basis for budgetary operation for the 1983-1984 fiscal year, to the department of law any appropriation and allocated balances in the 1983-1984 budget that may have previously been designated to the department of risk management. (Prior code § 2-1-15.3(d))

2.40.190 Powers, duties and responsibilities.

The duties, responsibilities and authority formerly assigned to the department of risk management and now transferred to the department of law include, but shall not be limited to:

A. Direct the risk and loss-prevention measures of all departments and agencies of the metropolitan government by identifying areas having risk and loss potential; analyze and evaluate risk and loss exposure and determine alternate methods of handling them; establish a reporting system of identified risk and loss areas to the various departments and agencies;

B. Purchase insurance where necessary in accordance with the purchasing procedures of the metropolitan government, except in those areas where purchasing procedures are expressly exempted by state statute; assist the division of purchasing in the development of bid specifications when insurance and surety bonds are bid; advise the purchasing agent in the placement of all insurance and bond coverages;

C. Conduct inspections and establish loss-prevention programs;

D. Centralize all casualty and property insurance programs of the metropolitan government; consult with and advise the various departments and agencies on all aspects of property and casualty insurance; develop and maintain levels of retention for those areas where insurance coverage is purchased;

E. Determine those areas where self-insurance is advisable; design, subject to the approval of the director of finance, any self-insurance programs, and administer such programs;

F. Review all contracts and leases to determine risk and loss exposure to the metropolitan government and recommend methods of risk and loss transfer or risk and loss avoidance;

G. Maintain all records necessary for effective risk and loss management and insurance management, including but not limited to copies of policies, loss and claims reports and loss statistics, and review all contracts and leases where loss exposure exists;

H. Investigate claims made on behalf of the metropolitan government and claims made against the metropolitan government;

I. Cooperate with the department of finance on matters dealing with funds and/or funding in the processing of claim settlement drafts. (Ord. 95-1446 § 3, 1995; prior code § 2-1-15.3(e))

2.40.200 Administrative memorandums of understanding.

The department of law, by and through the director of law, shall have authority to enter into memorandums of understanding with other metropolitan agencies for the administration of the insurance, self-insurance, claims and safety programs of other agencies when so requested by other agencies. Any fees derived by the department of law for providing these services shall be paid into the general fund of the general services district. All memorandums of understanding entered into by the department of risk management are transferred to the department of law. (Prior code § 2-1-15.3(f))

Article IV. Employee Safety Program

2.40.210 Creation of division of employee safety.

There shall be a division of employee safety in the department of human resources. The division of employee safety shall be under the direction and control of the director of human resources. (Ord. BL2021-753 § 1, 2021; Ord. BL2006-1232 § 2, 2006)

2.40.220 Appointment of employees.

The director of human resources shall have the authority within budgetary guidelines to appoint all employees to the division of employee safety. All clerical positions shall be civil service positions. All professional positions shall be non-civil service positions if so stated in the ordinance creating the position,

otherwise such positions shall be civil service positions. (Ord. BL2021-753 § 2, 2021; Ord. BL2006-1232 § 2, 2006)

2.40.230 Compliance with occupational health and safety standards.

The division of employee safety shall develop, implement, and administer a program of compliance with the occupational health and safety standards of the State of Tennessee. The division of employee safety, in conjunction with the Metropolitan Safety Advisory Board, shall develop general policies and standards to establish a framework within which specific department, board, commission, and agency safety programs are developed to minimize hazards and reduce injuries in their operations and to comply with the occupational health and safety standards of the State of Tennessee. (Ord. BL2006-1232 § 2, 2006)

2.40.240 Functions of division of employee safety.

The division of employee safety shall administer, direct and coordinate the following functions:

1. The central employee safety program of the metropolitan government including working with all departments, each of which shall be responsible for establishing its own safety program;

2. In coordination with each department's own rules and regulations on employee safety, promulgation of rules, regulations and procedures relating to the safe premises, equipment and environment of metropolitan government employees;

3. Maintenance and preservation of all necessary records regarding employee safety required under law by the state or by the federal government;

4. Investigation of in-line-of-duty injury claims for the purpose of determining the cause of the injuries and preventing similar injuries in the future. (Ord. BL2006-1232 § 2, 2006)

2.40.250 Support of safety program.

Departments, boards, commissions, agencies, officers, and employees of the Metropolitan Government of Nashville and Davidson County shall support the employee safety program. (Ord. BL2006-1232 § 2, 2006)

2.40.260 Reports and recommendations on safety.

The director of human resources will make safety reports and recommendations, including the progress in improved safety in the workplace, to the metropolitan mayor. (Ord. BL2021-753 § 3, 2021; Ord. BL2006-1232 § 2, 2006)

Chapter 2.44

POLICE DEPARTMENT

Sections:

Article I. General Regulations

2.44.010 Establishment and composition.
2.44.020 Powers, duties and responsibilities.
2.44.030 Divisions and bureaus of the department—Police chief authority.
2.44.040 Zones, districts or precincts established—Assignment of personnel.
2.44.045 Hiring of certain officers prohibited.
2.44.050 In-service training program.
2.44.060 Extra compensation for certain personnel.
2.44.070 Parking enforcement patrol.
2.44.080 Photocopying fees for police reports.
2.44.085 Retired law enforcement animals.
2.44.090 Special police commissions, security guard directives, and handgun permits/written directives.
2.44.100 Special police commission—Qualifications for issuance to officers of other cities.
2.44.110 Presentation of gun and badge to retiring officers.
2.44.115 Reports to be submitted to the metropolitan council.

Article II. School Crossing Guard Division

2.44.120 Created.
2.44.130 Supervision—Limitations on police authority.
2.44.140 Rules and regulations applicable to personnel—Exceptions—Appointment of new members.
2.44.150 Qualifications for employment.
2.44.160 Duties of personnel.
2.44.170 Suspension, disciplinary action and dismissal—Employee rights.

Article III. Combat Auto Theft (CAT) Program

2.44.180 Authorization—Administration.
2.44.190 Acceptance of funds.
2.44.200 Use of funds.

Article IV. Extra-Duty Police Officers

2.44.210 Contracting to assign extra-duty police officers.

Article I. General Regulations

2.44.010 Establishment and composition.

There is established a department of metropolitan police, which shall consist of a director thereof, who is designated chief of police, and such other officers and employees of such ranks and grades as are established by this article. (Prior code § 34-1-5)

2.44.020 Powers, duties and responsibilities.

A. The department of metropolitan police shall be responsible within the area of the metropolitan government for the preservation of the public peace, prevention and detection of crime, apprehension of criminals, protection of personal and property rights, and enforcement of laws of the state and ordinances of the metropolitan government.

B. The director and other members of the metropolitan police force are vested by Section 8.202 of the Metropolitan Charter with all the power and authority belonging to the office of constable by the common law, and also with all the power, authority and duties which by statute may now or hereafter be provided for police and law enforcement officers of counties and cities, and they shall exercise this power and authority to diligently and effectively discharge the duties, responsibilities and functions of the department of metropolitan police. (Prior code § 34-1-6)

2.44.030 Divisions and bureaus of the department—Police chief authority.

A. The chief of police shall establish, by rules and regulations approved by the mayor and filed with the metropolitan clerk as a public record, such bureaus, divisions, units or sections as may be necessary or convenient to maintain the proper function and operation of the metropolitan police department. The chief of police, with the approval of the mayor, may amend or change the rules and regulations established as provided herein, and all changes or amendments to the rules and regulations of the metropolitan department of police shall be filed with the metropolitan clerk as a public record.

B. The chief of police shall implement the reorganization of the department of metropolitan police recommended by the I.A.C.P. report with such modifications of the plans recommended by such report as he shall deem necessary in the interest of departmental efficiency, and such reorganization of the department shall be effected through rules and regulations established as provided herein with the approval of the mayor.

C. The chief of police of the metropolitan police department is authorized to enter into contracts which would permit the metropolitan government to recoup funds expended in training recruits who did not accept employment with the metropolitan police department or left the metropolitan police department within three years of graduating from the police academy. (Ord. 99-1530 § 1, 1999; prior code § 34-1-7)

2.44.040 Zones, districts or precincts established—Assignment of personnel.

The chief of police shall establish zones, districts or precincts, and assign members of the department of metropolitan police to their respective posts, shifts, details and duties consistent with their rank. He may make such changes in assignments to posts and duties as he considers will enable the department to best fulfill its functions. (Prior code § 34-1-8)

2.44.045 Hiring of certain officers prohibited.

A. Definitions. For purposes of this section, the following terms have the meaning ascribed herein:

1. "Malfeasance" means the commonly approved usage of "malfeasance";

2. "Serious misconduct" means improper or illegal actions taken by a police officer in connection with such officer's official duties that could result in a miscarriage of justice or discrimination, including, but not limited to, (a) a conviction of a felony, (b) fabrication of evidence, (c) repeated use of excessive force, (d) acceptance of a bribe, or (e) the commission of fraud.

B. The metropolitan police department shall not hire any person as a police officer who was previously employed as a police officer by another law enforcement agency and who:

1. Was dismissed for malfeasance or other serious misconduct calling into question such person's fitness to serve as a police officer;

2. Resigned or retired from such officer's position while under investigation for such malfeasance or other serious misconduct; or

3. Has a documented employment history evidencing any of the following:

a. Discrimination based on race, national origin, gender or sexual orientation;

b. Excessive force;

c. Racial bias; or

d. Dishonesty related to the reporting, investigation, or prosecution of a crime or the misconduct of another officer.

C. The provisions of this section shall not apply to any police officer for which, after investigation, there was no finding of wrongdoing related to the accusation of malfeasance or other serious misconduct. (Amdt. 1 to Ord. BL2020-322 § 1, 2020; Ord. BL2020-322 § 1, 2020)

2.44.050 In-service training program.

The metropolitan police department shall establish an in-service training program which meets the requirements of the Tennessee Law Enforcement Planning Commission, in order to become eligible for salary supplements for police officers. The chief of police is required to do all things necessary to establish a training program in compliance with Tennessee Code Annotated Section 38-1113. (Prior code § 34-1-10.1)

2.44.060 Extra compensation for certain personnel.

A. Police officers assigned to duty as investigators may receive extra compensation amounting to five percent of their base pay for the irregular hours and special duties of such assignment, which shall be paid only when such police officers are assigned to duty as investigators, provided that such extra compensation shall not be considered as salary for the purpose of pensions and other employee benefits.

B. Police officers assigned to duty riding motorcycles shall receive extra compensation amounting to ten dollars per month during those periods when they are required to ride such motorcycles in the performance of their duties, provided that such salary shall not be considered as salary for the purpose of pensions and other employee benefits. (Prior code § 34-1-10)

2.44.070 Parking enforcement patrol.

A. There is created a parking enforcement patrol, for service in connection with the traffic law enforcement functions of the department of metropolitan police and department of public works, which shall, with the assistance of the traffic and parking commission and staff thereof, including any contractors and subcontractors thereof, police and control parking meter areas located on public thoroughfares, alleys and streets, such

patrolling and supervision being necessary for the proper enforcement of parking violations. The parking enforcement patrol officers shall be instructed and trained by the department of public works, and at the request of the director of public works, the chief of police shall appoint a designee who shall be responsible for any additional training of parking enforcement patrol officers that the director of public works and the chief of police deem necessary. The parking enforcement patrol officers shall be hired by the department of public works in accordance with that department's usual civil service procedures, but may also be appointed as special police with authority to enforce parking ordinances, and police powers to enforce meter and other parking violations are hereby extended to such parking enforcement patrol officers within the area of the metropolitan government.

B. The primary duty of the parking enforcement patrol officers shall be to patrol the streets of the metropolitan government area that have parking meters and to issue parking violation tickets for meter and parking violations. Their primary areas of patrol will be the parking meter areas, but they may be assigned to assist the police to enforce parking laws and regulations in other areas.

C. All expenses of training, uniforms, equipment and salaries, and all other incidental expenses of the parking enforcement patrol program shall be borne by the metropolitan traffic and parking commission, public works, or its contractors.

D. To the extent permitted by state law and the Metropolitan Charter, the parking enforcement patrol may utilize one or more contractors to perform the responsibilities assigned in this section, including assistance in the investigation of potential parking violations such as the collection and transmission of images recorded on any medium by a traffic control photographic system, license plate recognition technology, or other devices. Parking enforcement patrol officers may conduct investigations by reviewing evidence presented to them by contractors and may issue or cause the issuance of citations based on such evidence where warranted. Parking patrol officers may utilize contractors to deliver notices of citation to the owners of vehicles in violation, but any such citation shall be based on a parking enforcement patrol officer's determination that there is probable cause to believe that a violation of the parking provisions of the Metropolitan Code has been committed.

E. The initial term of any contract with a contractor as authorized by this section shall be limited in duration to no greater than sixty months. (Ord. BL2021-646 § 1, 2021; prior code § 34-1-9)

2.44.080 Photocopying fees for police reports.

The following schedule of fees to be paid to the metropolitan police department for special services provided by it is established as follows:

A. Records:

Traffic accident reports, per report . . . . . .$ 9.00[1]
Offenses/supplement reports, per report . . . . . .5.00[1]
Minor traffic accident reports, per report . . . . .3.00[1]
Computer reports:
Charge for minimum programming time, for 30 minutes 33.00
Charge for additional programming time, per minute 1.10
Record checks (local), per person 13.00
Handgun applications, processing, per application 19.00
Visa letters, preparation, per letter. 19.00

[1]Fees for reports cover the entire report, regardless of the number of pages.

B. Identification:

Fingerprinting, first set . . . . . .$ 9.00
Additional copy of same fingerprints 1.00
Photographs:
A. Print (8 × 10 or smaller), each. 5.00
B. Mugshot reproduction, each. 2.00

C. Audio/video reproduction of existing audio/video (tape furnished by MPD) .5.00 setup charge, plus $0.40 per minute for editing. (Ord. 91-1648 § 1, 1991; prior code § 34-1-4.2)

2.44.085 Retired law enforcement animals.

A. It is the policy of the metropolitan government that former police department canine (K-9) unit dogs and former mounted patrol horses be adequately cared and provided for following their service to the metropolitan government.

B. The metropolitan police department shall be responsible for the veterinary and shoeing expenses associated with the care of former law enforcement animals up to an amount not to exceed two thousand five hundred dollars per animal per calendar year, provided that the animal remains in the possession and care of an active or retired metropolitan police officer and such veterinary care is provided by a licensed veterinarian. Veterinarian and shoeing expenses incurred by the active or retired police officer shall be reimbursed in accordance with procedures established by the chief of police or his/her designee. The provisions of this subsection shall apply to all former police department animals under the ownership and care of an active or retired police officer, and to all animals donated to active or retired police officers in the future.

C. Former canine unit dogs shall be boarded at the police department's canine facility at no cost to the active or retired police officer to whom the dog has been donated for no more than fourteen days per calendar year, provided notice is given to the facility at least forty-eight hours prior to the dog being boarded and adequate space is available at the facility. The division commander over the canine facility may extend the fourteen day time limitation if adequate space is available at the facility to accommodate the dog. The division commander also has the authority to deny a boarding request for any dog with a contagious disease or a dog that is deemed by the division commander to be disruptive to the other dogs at the facility.

D. The metropolitan police department shall be responsible for providing food for every former police dog or horse in the custody and control of an active or retired metropolitan police officer at such officer's request. Such food shall be provided by the police department for the life of the animal.

E. The provisions of subsections A. through D. above shall apply to all former police department animals under the ownership and care of an active or retired police officer, and to all animals donated to active or retired police officers in the future.

F. All persons, organizations, or agencies accepting a donated animal from the police department shall sign a general release form prepared by the department of law releasing the metropolitan government from any liability for the future actions of the animal and indemnifying the metropolitan government from any and all actions, claims, and demands arising out of the control, possession, maintenance, and/or conduct of the animal.

G. Once the police department determines that an animal is no longer fit for active service with the department, the department shall first offer to donate the animal to the police officer assigned to the animal at the time such determination is made. If the police officer assigned to the animal declines to accept the donation of the animal, the police department shall make a reasonable effort to contact the person(s) that donated the animal to the metropolitan government and offer to return the animal to him/her. If neither the police officer assigned to the animal nor the person(s) that donated the animal to the metropolitan government accept the donation of the animal, the police department shall have the authority to donate the animal to another person, law enforcement agency, or organization the department deems appropriate. (Amdt. 1 to Ord. BL2012-250 § 1, 2012; Ord. BL2012-250 § 1, 2012)

2.44.090 Special police commissions, security guard directives, and handgun permits/written directives.

A. Special Police Commissions.

1. Pursuant to Section 8.205 of the Charter, the chief of police may, in his discretion, issue special police commissions to qualified persons. All applicants for special police commissions must undergo a background investigation and must successfully complete a suitable period of training by the metropolitan police department in the use of firearms, which training shall include performance tests on a firing range, indicating the person to be qualified in the use of firearms. Training shall be conducted with a weapon approved by the chief of police. The special police commission shall authorize the carrying of the type of weapon and ammunition used in the training.

2. Those persons issued special police commissions shall comply with all regulations promulgated by the chief of police, which may include a requirement that each person, while carrying a weapon and engaged in the employment for which the commission was issued, shall be in a uniform prescribed by the chief of police.

3. The following schedule of fees shall be paid to the metropolitan police department by any special police commission applicant to defray the expense of investigating the background of the applicant, firearms training and qualification, processing the application, and issuance, if granted, of the special police commission. The chief of police may waive any fee for any portion of the issuance process which may have been previously completed by the applicant.

a. Background investigation, processing, and issuance—$55.00.

b. TBI and FBI fingerprint check—$46.00.

c. Fingerprint cards—$10.00

d. Firearms training and qualification—$110.00

Additionally, should a special police commission be issued, the holder must, prior to entering upon the performance of duties, execute and file with the metropolitan clerk a public officer's liability bond in the amount established by resolution of the metropolitan council.

4. Each special police commission shall expire one year from the date of issue unless renewed or reissued by the chief of police, in his discretion, upon application for renewal or reissuance and compliance will all prerequisites for a special police commission. Each special police commission may be revoked at any time by the chief of police with the approval of the mayor.

B. Security Guard Directives.

1. Pursuant to the Private Protective Services Licensing and Regulatory Act, Tennessee Code Annotated Section 62-35-101 et seq., the chief of police may issue to any properly and duly registered armed security guard/officer in the possession of a valid registration card and who has presented proof of compliance with the Act, a written directive authorizing that individual to carry a weapon for the purpose of employment within Davidson County and for a specific employer. The security guard directive shall comply with all requirements set forth in the Act.

2. A fee of fifteen dollars shall accompany each application for a security guard directive, to defray the expense of issuance and administration of the directive.

3. Upon expiration or change of employment/employer, or revocation or suspension of an individual's armed security guard/officer registration card, the security guard directive shall immediately be returned to the chief of police. Furthermore the chief of police shall at all times reserve the right to revoke or suspend the security guard directive at such time as he finds any reason, in his judgment, which indicates the person's disqualification to carry a weapon within Davidson County.

C. Handgun Permits/Written Directives.

1. The chief of police may, in his discretion, issue a handgun permit/written directive authorizing the carrying of a handgun in Davidson County to qualified persons, not otherwise authorized to carry a weapon in Davidson County, who meet or exceed the requirements for same set forth in Tennessee Code Annotated Section 39-17-1315(a). However, nothing in this section shall prohibit the chief of police from adopting additional regulatory and/or qualifying provisions for handgun permits/written directives, including any requirement that the holder of a handgun permit/written directive, while carrying a hand-gun, wear a uniform prescribed by the chief of police. All firearms training and qualification shall be conducted with a handgun approved by the chief of police. The handgun permit/written directive shall authorize only the carrying or the type of handgun and ammunition used in the training.

2. The following schedule of fees shall be paid to the metropolitan police department by any applicant for a handgun permit/written directive to defray the expense of investigating the background of the applicant, firearms training and qualification, processing the application and, if granted, issuance of the handgun permit/written directive. The chief of police may waive any fee for any portion of the application process which may have been previously completed by applicant.

a. Background investigation, processing, and issuance—$55.00.

b. TBI and FBI fingerprint check—$46.00.

c. Fingerprint cards—$10.00.

d. Gunrange qualification—$110.00.

Furthermore, prior to the issuance of any handgun permit/written directive, the applicant shall provide proof of the insurance required by Tennessee Code Annotated Section 39-17-1315, or else post with the metropolitan clerk the alternative bond required by Tennessee Code Annotated Section 39-17-1315.

3. Each handgun permit/written directive shall expire one year from the date of issue, and may be reissued only upon application and compliance with all prerequisites for a handgun permit/written directive. Furthermore, the chief of police may revoke any handgun permit/written directive at such time that he finds that any of the laws, rules or regulations governing handgun permits/written directives have been violated, or for any other reason which in the judgment of the chief of police indicates the person's disqualification to carry a handgun.

(Ord. 93-617 § 1, 1993; Ord. 91-1647 §§ 1, 2, 1991; Ord. 90-1159 §§ 1, 2, 1990; prior code § 34-1-4.1)

2.44.100 Special police commission—Qualifications for issuance to officers of other cities.

A. The director of the department of police of the metropolitan government is authorized to issue special police commissions to police officers of smaller cities within the Metropolitan Government of Nashville and Davidson County, provided these police officers:

1. Meet the minimum standards of the Tennessee Peace Officers' Standards and Training Commission in accordance with Tennessee Code Annotated Section 38-8-101 et seq.;

2. Receive firearm instruction from an instructor who is certified by a recognized approving agency and the department of police training academy firearms section;

3. Meet shooting qualification standards of at least seventy-five percent efficiency annually, using their department-issued firearms on a firearms range which meets the Practical Pistol Courts (P/P/C) Standards and the officer's course of fire has been approved by the department of police training academy firearm division; and

4. Are employed full-time by the smaller cities as police officers.

B. Smaller city police departments shall forward all necessary documentation to the director of the department of police of the metropolitan government before a special police commission shall be issued.

C. A special police commission for police officers of smaller cities does not increase those police officers' jurisdiction. (Prior code § 34-1-4.1.1)

2.44.110 Presentation of gun and badge to retiring officers.

The metropolitan police department shall make a gift of a gun and badge to all retiring police officers who have at least twenty-five years of service upon their retirement. To be eligible to receive the gun and badge, the police officer must retire in good standing and be eligible to receive a service pension. This section shall apply to all officers who have retired since July 1, 1979, and meet all the conditions set forth herein. (Prior code § 34-1-4.3)

2.44.115 Reports to be submitted to the metropolitan council.

A. Quarterly crime report. The police department shall submit a quarterly crime report to the public safety committee of the metropolitan council within thirty days of the end of the months of March, June, September and December, which report shall include, but not be limited to, an update of crimes allegedly committed during the previous quarter within the area of the metropolitan government broken down by type of crime and by police sector.

B. Annual crime report. On or before March 30 of each year, the police department shall submit an annual crime report to the public safety committee of the metropolitan council, which report shall include, but not be limited to:

1. Crimes allegedly committed during the previous year within the area of the metropolitan government broken down by type of crime, by police sector and by council district.

2. Maps showing crime hotspots within the area of the metropolitan government.

3. City-wide crime figures for each of the previous five years.

C. Annual traffic stop report. On or before March 30 of each year, the police department shall submit an annual traffic stop report to the metropolitan council, which report shall include, but not be limited to:

1. For each "demographic category" as defined in subsection (2) below, a listing by MNPD Precinct and MNPD patrol zone of the following:

a. The total number of traffic stops;

b. The percentage of traffic stops that result in warrantless probable cause searches;

c. The success rate of warrantless probable cause searches, defined as the percentage of such searches that result in the seizure of incriminating evidence of any kind;

d. The percentage of traffic stops that result in warrantless consent searches without probable cause;

e. The success rate of warrantless consent searches without probable cause, defined as the percentage of such searches that result in the seizure of incriminating evidence of any kind;

f. The percentage of traffic stops that result in warrantless "pat down" searches;

g. The success rate of "pat down" searches, defined as the percentage of such searches that result in the seizure of illegal weapons.

2. Each "demographic category" shall be defined by sex, race, and ethnicity. For instance, "White non-Hispanic males," "Black females," "Hispanic white females," etc.

D. Quarterly use of force report. The police department shall submit a quarterly use of force report to the metropolitan council within thirty days of the end of the months of March, June, September, and December.

1. Such quarterly report shall include, but is not limited to, the following information:

a. Demographic information for the individual subject to the use of force, including the individual's age (which may be provided by age range), gender, and ethnicity;

b. The specific age of a minor individual subject to use of force;

c. The number of instances a firearm was displayed or discharged by a police officer in addition to another use of force;

d. The number of incidents where an individual subject to use of force suffered an injury directly related to the use of force, including the number of incidents that were in compliance with police policy and out of compliance with police policy; and,

e. For the use of a conducted energy weapon ("taser"):

a. The total number of taser discharges; and

b. The average number of taser cartridges used per incident.

2. As used in this subsection, "use of force" means the types of force described in Title 11 of the police departmental manual, as may be amended, beginning with hand-held chemical spray/conducted energy weapon and increasing stages of intensity under the definition of

Force-Continuum. (Amdt. 1 to Ord. BL2024-179 § 2, 2024; Ord. BL2024-179 §§ 1, 2, 2024; Ord. BL2016-483 §§ 1—3, 2017; Amdt. 1 to Ord. BL2006-1261 § 1, 2006; Ord. BL2006-1261 § 1, 2006)

Article II. School Crossing Guard Division*

2.44.120 Created.

A school crossing guard division of the department of metropolitan police is created, subject to the rules, regulations and conditions established by this article. (Ord. BL2012-261 § 6, 2012; prior code § 34-1-12)

2.44.130 Supervision—Limitations on police authority.

The chief of police shall designate a director of the school crossing guard division with authority to supervise the work of the division. It is the intent of this article to establish a school crossing guard division solely to maintain the safety and protection of school children on their way to and from school. The employees of the division shall have no police authority to make arrests or issue traffic citations, and may direct traffic only during times when children are going to or coming from schools, by creating gaps in traffic for the purpose of protecting children going to or coming from schools from vehicles, and expediting the movement of vehicles involved in picking up or dropping off children at schools, including vehicles which have completed the dropping off of children or are preparing to pick up children. (Ord. BL2012-261 § 6, 2012; Ord. 93-789 § 1, 1993; prior code § 34-1-13)

2.44.140 Rules and regulations applicable to personnel—Exceptions—Appointment of new members.

The rules and regulations adopted by the metropolitan civil service commission for the classified service employees of the metropolitan government on August 18, 1964, shall apply to the employees of the school crossing guard division, except where any such rule may be in conflict with the limited tenure provision of this article. This article recognizes that the employees of the school crossing guard division are not entitled to vacations, sick leave, overtime, or any other fringe benefits not recognized by the metropolitan council. The chief of police shall appoint new employees to fill vacancies from an eligible list to be maintained by the director. (Ord. BL2012-261 § 6, 2012; prior code § 34-1-17)

2.44.150 Qualifications for employment.

Persons employed by the school crossing guard division shall:

1. Be over the age of twenty-one at the time of employment;

2. Present a valid Tennessee driver's license or other picture identification and a Social Security card;

3. Pass a pre-employment drug screen test and criminal background check;

4. Submit three character references with his/her employment application evidencing the applicant's good moral character; and

5. Meet any other requirement or qualification for the position established by the chief of police. (Ord. BL2012-261 § 6, 2012; prior code § 34-1-15)

2.44.160 Duties of personnel.

Duties of the school crossing guard division shall be established by the officer appointed as director of the division, subject to the approval of the chief of police. Such duties shall be consistent with the rules and regulations of the civil service commission, as adopted by the commission on August 18, 1964, or any amendments made thereto, and the rules and regulations of the metropolitan police department. Current duties, rules and regulations applicable to the school crossing guard division shall be filed with the metropolitan clerk's office as a public record. (Ord. BL2012-261 § 6, 2012; prior code § 34-1-14)

2.44.170 Suspension, disciplinary action and dismissal—Employee rights.

Any member of the school crossing guard division shall be subject to suspension, disciplinary action or dismissal by the chief of police in the same manner as a regular member of the police department for cause. Any employee of the division shall be entitled to a hearing before the metropolitan civil service commission just as though such employee were in the classified service of the metropolitan government. It is the intent of this section that every employee of the school crossing guard division, within the tenure of her eligibility, shall be considered to be entitled to the same protection provided for classified employees. (Ord. BL2012-261 § 6, 2012; prior code § 34-1-16)

*Editor's note—Ord. BL2012-261, § 6, adopted Oct. 16, 2012, renamed Ch. 2.44, Art. II to read as herein set out. Formerly, said article was entitled "School Mothers' Patrol Division."

Article III. Combat Auto Theft (CAT) Program

2.44.180 Authorization—Administration.

The metropolitan police department is authorized to operate a combat auto theft (CAT) program for the benefit of any owner of a motor vehicle who desires to enroll his vehicle(s) in the program, and to charge a five dollar enrollment fee per vehicle to cover the administration of the program, including the cost of a decal to be placed on the rear window of the vehicle. The police department shall adopt the necessary rules and regulations to conduct the program. Participation in the program shall be voluntary. (Ord. 92-431 § 1, 1992)

2.44.190 Acceptance of funds.

Through the council's legislative power and the government's specific authorization to accept gifts, as set forth in Sections 3.06 and 2.01(14) of the Charter respectively, the police department is hereby authorized to accept from Crimestoppers of Nashville, Inc., a gift of five thousand dollars for the purpose of providing start-up capital for the implementation of the CAT program. (Ord. 92-431 § 2, 1992)

2.44.200 Use of funds.

All enrollment fees and contributions to the CAT program shall be placed in general fund revenue accounts to be used exclusively for the purpose of paying the costs of operating the program. (Ord. 92-431 § 3, 1992)

Article IV. Extra-Duty Police Officers

2.44.210 Contracting to assign extra-duty police officers.

A. The chief of police, or his/her designee, is authorized to enter into contracts with private entities and smaller cities within the area of the metropolitan government to assign extra-duty police officers who have volunteered to work additional duty in an on-duty status to provide security services at certain events or activities approved by the chief of police, or his/her designee. The chief of police, or his/her designee, is further authorized to equip these extra-duty police officers with police vehicles during such events or activities if, in the opinion of the chief of police, or his/her designee, the use of the police vehicles would better protect the public or the officers, and police vehicles are available for such use. The chief of police, or his/her designee, shall have the discretion to determine the number of police officers, including supervisory officers, and the number of police vehicles that will be required during such an event or activity.

B. The private entities and smaller cities within the area of the metropolitan government shall reimburse the metropolitan government its costs in assigning volunteer officers to such additional duty in an on-duty status and shall reimburse the metropolitan government its cost in equipping the extra-duty officers with police vehicles or other specialized equipment. Such costs shall include, but are not limited to, any costs associated with additional salaries, use of police vehicles, the increased risk of legal liability, and the cost of possible officer injuries in the performance of these services. The contracts authorized by this section shall be approved by the director of finance and the director of law. Only those officers volunteering for extra-duty assignments shall be assigned to work these events or activities.

C. For purposes of this section "private entity" means any natural person, firm, partnership, association, corporation, limited-liability company, trust, or other nonpublic entity. "Private entity" shall not include any contract security company or other enterprise engaged in the business of providing, or undertaking to provide, security services, security guards, or patrol services to others on a contractual basis. (Ord. BL2009-368 § 1, 2009; Ord. 98-1368 § 1, 1998)

Chapter 2.48

DEPARTMENT OF PUBLIC WORKS

Sections:

2.48.010	**Divisions and units of the department established.**
2.48.020	**Director of engineering—Qualifications.**
2.48.030	**Special assistant to the director.**

2.48.010 Divisions and units of the department established.

The director of public works shall establish by rules and regulations such divisions and other units as are provided by the Metropolitan Charter and any other divisions, sections and other units which may be necessary to obtain and maintain the proper function and operation of the department of public works. Such division shall include, but shall not be limited to, the division of departmental services, division of engineering and division of operations, which divisions shall be under the direction of an assistant director, each assistant director to perform such duties and responsibilities as may be assigned to him by the director of public works. (Prior code § 2-1-4)

2.48.020 Director of engineering—Qualifications.

The director of engineering shall be a graduate of a recognized college or university with an engineering degree, and in addition to such degree, shall have at least five years of advanced engineering, administrative or management experience in connection with public works. In lieu of a degree, two years of completed credit in a recognized college or university will be acceptable, provided it is accompanied by at least ten years of advanced responsible experience in engineering, administration or management in public works. A license from the state board of architectural and engineering examiners for the practice of engineering in Tennessee shall be required. (Prior code § 2-1-5)

2.48.030 Special assistant to the director.

There shall be in the department of public works the position of special assistant to director, who shall assist the director of public works in the administration of the department, performing such duties and responsibilities as may be assigned by the director of public works. (Prior code § 2-1-6)

Chapter 2.52

DEPARTMENT OF WATER AND SEWER SERVICES

Sections:

2.52.010	**Divisions and sections established.**
2.52.020	**Assistant directors—Qualifications.**
2.52.030	**Billings and collection manager.**
2.52.040	**Employment of engineering consultants.**

2.52.010 Divisions and sections established.

The director of the department of water and sewerage services shall establish by rules and regulations such divisions and other units as are provided by the Metropolitan Charter and any other divisions, sections and other units which may be necessary to maintain the proper function and operation of the department. The divisions of the department shall include, but need not be limited to, a division of water service and a division of sewerage service, which divisions shall be under the direction of an assistant director for water service and an assistant director for sewerage service respectively, who will perform such duties and responsibilities as may be assigned to them by the director of water and sewerage services. (Prior code § 40-1-1)

2.52.020 Assistant directors—Qualifications.

The assistant director for water service and the assistant director for sewerage service shall be graduates of a recognized college or university, preferably with an engineering degree. However, a B.A. or B.S. degree will be acceptable. In addition to the requirement of a degree, at least five years of administrative or management experience in connection with utility operation or public works projects shall be required. In lieu of a college degree, two years of college work in a recognized college or university will be acceptable, provided it is accompanied by at least ten years of administrative experience in connection with public works projects or community planning or both. (Prior code § 40-1-2)

2.52.030 Billings and collection manager.

There is established within the department of water and sewerage services the position of billing and collections manager. The duties and responsibilities of the employee holding the position of billing and collections manager shall be to direct and supervise the billing and collection section of the department of water and sewerage services and to plan, organize and give direction to the day-by-day activities of the employees of the billing and collections section, make special, administrative, daily, monthly and annual reports on all phases of the billing and collections section, enforce all regulations in regard to charges for service, be responsible for proper billing and collection for charge of water and sewerage service, establish proper procedures for entering new accounts on the records, write letters to consumers explaining policy, ordinances and charges, plan workload and schedule vacations, schedule days off to insure smooth operation, review customers' adjustments and refunds and supervise ordering and maintenance of equipment. (Prior code § 40-1-3)

2.52.040 Employment of engineering consultants.

The director of the department of water and sewerage services, with the approval of the mayor, is hereby authorized to retain necessary engineering consultants whenever, in the judgment of the director, such services are deemed to be necessary for the proper operation, maintenance and expansion of the water and sewerage system. (Prior code § 40-1-4)

Chapter 2.56

METROPOLITAN COURTS

Sections:

Article I. General Regulations

2.56.010 Judge of juvenile court—Authority to detain certain juveniles—Education requirements for detainees.
2.56.020 Parole of traffic violators—Failure to observe conditions deemed misdemeanor.
2.56.030 Property confiscated by police department—Custody by court clerk.
2.56.040 Property confiscated by police department—Disposal conditions.

Article II. Court Costs

2.56.050 Applicability of article.
2.56.060 Assessment of court costs required when—Amount.
2.56.070 Payment—Accounting and remittance.
2.56.080 Time of collection—Procedure when amount paid is insufficient.
2.56.090 Effect of appeals on payment—Circuit court to collect costs when.

Article III. Division of Probation

2.56.100 Administration of the division—Appointment of employees.
2.56.110 Employees—Classification and salaries.
2.56.120 Probation counselor, division directors and staffing.
2.56.130 Utilization of funds—Budget for operation.
2.56.135 Reserved.

Article IV. Parole and Probation Office

2.56.140 Created.
2.56.150 Chief probation officer authority—Other officers.
2.56.160 Responsibilities and duties.
2.56.170 Statutory powers and responsibilities.
2.56.180 Investigation of petitioners for suspended sentences or paroles—Reports.
2.56.190 Supervision of parolees.

Article V. Traffic Violations Bureau

2.56.200 Created—Authority of clerk of the metropolitan court.
2.56.210 Powers and duties.

Article VI. Probate Court—County Judge

2.56.300 Alcohol Diversion and Preventive Treatment (ADAPT) program supervisory authority.

Article VII. Justice Integration Services

2.56.400 Creation.
2.56.410 Purpose.
2.56.420 Membership.
2.56.430 Policy committee.
2.56.440 Presiding officer.
2.56.450 Powers.
2.56.460 Duties.
2.56.470 Exemption.

Article VIII. Traffic Safety School and DUI School

2.56.500 Creation of general sessions court traffic safety school.
2.56.510 Traffic safety school eligibility.
2.56.520 Traffic safety school staffing and records.
2.56.530 Traffic safety school fee.
2.56.540 Permissible use of traffic safety school fees collected.
2.56.550 Creation of sheriffs office DUI school.
2.56.560 DUI school staffing and records.
2.56.570 Permissible use of DUI school fees collected.

Article IX. Pre-Trial Release Program

2.56.600 Pre-trial release program.
2.56.610 Supervision fee—Exemption.

Article I. General Regulations

2.56.010 Judge of juvenile court—Authority to detain certain juveniles—Education requirements for detainees.

A. The judge of the juvenile court for Davidson County is authorized to detain juveniles from other counties upon written requests and executed letter contracts from proper officials from such other counties, a copy of same being attached hereto, and to set and charge reasonable per diem fees therefor.

B. All detainees of the metro juvenile detention facility shall be provided not less than fifteen hours of active academic instruction each week. Such academic instruction shall be provided eleven months per year by at least one full-time certified teacher and at least one full-time educational assistant, who shall be employed by the metropolitan juvenile court. Such academic instruction shall be designed to afford such detainees educational enhancement and learning opportunities and shall not be merely a study hall program. (Ord. 96-296 § 1, 1996; prior code § 12-1-3.1)

2.56.020 Parole of traffic violators—Failure to observe conditions deemed misdemeanor.

Persons accused of violating traffic ordinances or traffic regulations of the metropolitan government may be paroled only in the manner and under the conditions prescribed by Divisions II and III of the metropolitan court. Failure to observe such method or conditions of parole by any court officer, police officer, clerk of the traffic violations bureau or any other person charged with the administration of this article shall constitute a misdemeanor in office, and such person shall be subject to a fine not exceeding twenty-five dollars. (Prior code § 12-1-1)

2.56.030 Property confiscated by police department—Custody by court clerk.

All property confiscated by the metropolitan police department in connection with violations of this code or other metropolitan ordinances shall be turned over to the metropolitan court clerk and held by him until the disposition thereof is ordered by a metropolitan judge. The court clerk shall keep a record of all property turned over to him by the police department and the disposition thereof. (Prior code § 12-1-2)

2.56.040 Property confiscated by police department—Disposal conditions.

All property confiscated as provided in Section 2.56.030 shall be disposed of in the following manner:

A. All cash, negotiable papers, securities and other property of like kind shall be turned over to the clerk of the metropolitan court and shall be transmitted by such clerk to the metropolitan director of finance to be credited to the general fund account.

B. All property of value not included in subsection A of this section shall be turned over to the property room of the metropolitan police department and disposed of in accordance with the procedures of the metropolitan police department.

C. All property of no monetary value shall be disposed of at the direction of a metropolitan judge. (Prior code § 12-1-3)

Article II. Court Costs

2.56.050 Applicability of article.

This article shall apply to Division I of the metropolitan courts, or any metropolitan general sessions court having jurisdiction over municipal ordinances, regulations, resolutions or private acts, with the exception of moving or nonmoving traffic violations, and the clerk serving such courts shall remit costs as provided above to the metropolitan government. (Prior code § 12-1-18)

2.56.060 Assessment of court costs required when—Amount.

Every person who has been convicted of or pleads guilty to the violation of a metropolitan ordinance, regulation, resolution or private act in Division I of the metropolitan court of the metropolitan government, or any other metropolitan general sessions court having jurisdiction over municipal ordinances, resolutions or private acts, with the exception of moving and nonmoving traffic violations, shall, in addition to any fine imposed or assessed by such court and in addition to any fee required to be collected for and on behalf of the state or pursuant to the laws of the state, be required to pay the clerk of the metropolitan court the following costs:

A. Where the conviction is for the violation of a metropolitan ordinance other than a traffic violation, the cost therein shall be twelve dollars and fifty cents for each such offense for which the person is convicted or pleads guilty;

B. Should the defendant request of the court and be granted a continuance, an additional fee of five dollars for each such continuance shall be imposed. This section shall not apply to moving and nonmoving traffic violations;

C. No cases may be retired in Division I of the metropolitan court or any other court having jurisdiction over metropolitan ordinances, regulations, resolutions or private acts, with the exception of moving and nonmoving traffic violations, until all costs have been paid;

D. The court shall have no power to reduce, dismiss or suspend any of the costs imposed by this article. (Prior code § 12-1-13)

2.56.070 Payment—Accounting and remittance.

The costs imposed by this article shall be collected by and paid to the clerk of the metropolitan court, and such

clerk shall account for all such costs in accordance with the rules and regulations of the director of finance of the metropolitan government, and shall remit such costs to the metropolitan treasurer. (Prior code § 12-1-14)

2.56.080 Time of collection—Procedure when amount paid is insufficient.

A. The metropolitan court clerk shall collect the costs imposed herein from each person who is found to be guilty of violating a metropolitan ordinance, and such costs shall be collected at the same time and substantially simultaneous with the collection of the fine imposed, if any.

B. In all cases where a fine is imposed, if the amount of money paid to the metropolitan court clerk is insufficient to pay the fine and costs, then the amount so paid shall be used first to pay the costs imposed herein, and the remaining amount to pay the fine. In no case, however, shall any person be imprisoned or incarcerated for failure to pay the costs imposed by this article. (Prior code § 12-1-15)

2.56.090 Effect of appeals on payment—Circuit court to collect costs when.

A. Upon an appeal being taken from any judgment of the metropolitan court wherein the defendant was convicted of violating a metropolitan ordinance, regulation or private act, the appeal shall not act as stay or supersedeas as of the cost imposed by this article, unless the defendant executes an appeal bond, with solvent surety, conditioned to pay the metropolitan court costs if, upon appeal, he is found guilty.

B. If, upon appeal to the circuit court as provided in Section 14.05 of the Charter, the defendant is found guilty of violating a metropolitan ordinance, the circuit court clerk shall collect such costs as are imposed by this article, and such costs shall be in addition to and not in lieu of any other costs imposed by law. Such costs collected by the circuit court clerk shall be remitted to the metropolitan government in the same method that fines collected by the circuit court clerk on appeal are now remitted to the metropolitan government. (Prior code § 12-1-16)

Article III. Division of Probation

2.56.100 Administration of the division—Appointment of employees.

The division of probation shall be administered by the office of the presiding judge of the metropolitan general sessions courts by virtue of the administrative duties assigned that office by the Charter, and shall serve each judge equitably. All employees in the division will be appointed by the presiding judge on the advice and consent of the other judges acting in majority. (Prior code § 12-1-35)

2.56.110 Employees—Classification and salaries.

Employees in the division will serve at the pleasure of the judges of the courts. Such employees will not be civil service employees; however, the employees will be eligible for all the benefits and privileges afforded other metropolitan government employees. Salaries of employees will be in keeping with the metropolitan department of personnel's pay plan enacted July 1, 1974, and any subsequent pay plan enacted thereafter by the council and adopted by the metropolitan government. (Prior code § 12-1-36)

2.56.120 Probation counselor, division directors and staffing.

There shall be a probation counselor assigned to serve each judge in each of the divisions of the courts. The division shall have a director who shall be directly responsible to the office of the presiding judge for the supervision and performance of the probation counselors, as well as all other day-to-day functions of the division and its employees. There shall be adequate secretarial services provided the division. (Prior code § 12-1-37)

2.56.130 Utilization of funds—Budget for operation.

The division of probation shall have the right to utilize both public and private moneys for program development and operation, and to negotiate and contract within such guidelines imposed by the administrative and legislative branches of metropolitan government. Budget for the operation shall be part of the annual budget prepared by the office of the presiding judge and court administrator for council approval. (Prior code § 12-1-38)

2.56.135 Reserved.

Editor's note—Ord. BL2021-782 § 1, passed July 20, 2021, repealed § 2.56.135, which pertained to probation supervision fees and derived from Ord. 91-1616 § 1, 1991; Ord. BL2006-1092 § 1, 2006; Ord. BL2008-176 § 1, 2008.

Article IV. Parole and Probation Office

2.56.140 Created.

There is created an office to be known as the parole and probation office of Davidson County, and to be staffed as set forth in this article. (Prior code § 12-1-19)

2.56.150 Chief probation officer authority—Other officers.

A. The parole and probation office shall be under the control of the chief probation officer, whose salary shall be not more than the maximum as provided for in the metropolitan pay plan, and who shall be appointed by the judges of the criminal court of the county, and the district attorney general, and who shall serve at the pleasure of such judges and district attorney general. Such position, and all other positions of the parole and probation office, shall not be in the classified service, as provided by the Metropolitan Charter.

B. There shall likewise be authorized one supervising probation officer, one principal probation officer and one senior legal stenographer, whose salaries shall be as provided for in the metropolitan pay plan, and who shall be appointed by and serve at the pleasure of such judges and district attorney general. (Prior code § 12-1-23)

2.56.160 Responsibilities and duties.

This office shall have the responsibility of assisting the judges and the district attorney general of the criminal courts of the metropolitan government in the investigation, supervision and control of persons released, or who apply to be released, under suspended sentences on parole by such judges. Such parole and probation office shall, under the direction of such judges and the district attorney general, investigate and make reports to such officials as to the circumstances, history, criminal record, social, physical and mental condition of persons who apply to be released, or are released, under a suspended sentence on parole. Such office shall also investigate and make reports so such officials related to revocation of suspended sentences or parole. (Prior code § 12-1-20)

2.56.170 Statutory powers and responsibilities.

The positions and office created by this article shall have all those powers, duties, responsibilities and obligations as provided for in Chapter 490 of the Private Acts of 1947, except where specifically changed by this article. (Prior code § 12-1-24)

2.56.180 Investigation of petitioners for suspended sentences or paroles—Reports.

A. Upon the filing of a petition for a suspended sentence or parole, and provided the requirements and provisions of Chapter 591 of the Public Acts of 1989, as amended, have been complied with, such petition shall be referred to the parole and probation office, and the parole and probation office shall, as soon as possible thereafter, make a full investigation of the averments of the petition, the circumstances, history, criminal record, and the social, physical and mental condition of the petitioner, and shall file a written report setting out in detail the results of such investigation. A copy of such written report shall be furnished each of the criminal judges and the district attorney general.

B. No petition for a suspended sentence or parole shall be considered by the criminal courts unless and until the provisions of Chapter 591 of the Public Acts of 1959, and the provisions of this article, have been fully complied with, and unless and until a written report of the parole and probation office has been filed and copies furnished as hereinabove provided. (Ord. 90-1339 § 1 (12-1), prior code § 12-1-21)

2.56.190 Supervision of parolees.

The parole and probation office shall interview and visit, from time to time, persons paroled or released under suspended sentences by the criminal judges, shall supervise, investigate, check on and report to such judges and the district attorney general the actions, conduct, behavior and progress of such persons, and may require the parolee to report to such parole and probation office at regular intervals. It shall aid all such persons in the amendment of their ways and in rehabilitating them, shall assist in securing employment for them, and shall aid and assist them in every possible way, to the end that such persons shall become and remain law-abiding citizens. (Prior code § 12-1-22)

Article V. Traffic Violations Bureau

2.56.200 Created—Authority of clerk of the metropolitan court.

A. There is created a traffic violations bureau, which shall be under the control and supervision of the clerk of the metropolitan court.

B. All clerks and other employees of the traffic violations bureau shall be the employees of the clerk of the metropolitan court. (Prior code § 12-1-11)

2.56.210 Powers and duties.

The traffic violations bureau, pursuant to and in conformity with the rules and regulations prescribed by the metropolitan court, shall perform the following duties and functions:

A. Receive bail or bond from and issue receipts to all persons accused of violating the traffic ordinances or traffic regulations of the city;

B. Prepare warrants, subpoenas, capiases or any other process in connection with the trial or disposition of all cases wherein a violation of traffic ordinances or traffic regulations of the metropolitan government is charged;

C. Keep an easily accessible and properly arranged record of all arrests, convictions or violations of traffic ordinances or traffic regulations, including such explanatory data as will reflect the disposition made of such cases. Such records shall be kept current for a period of twelve months, and may thereafter be kept in the closed files or archives of the bureau;

D. Submit summarized monthly reports to the judges of the metropolitan court and to the finance director of the metropolitan government of all cases involving violations of traffic ordinances or traffic regulations, which monthly reports shall contain a statement of all money collected by the traffic violations bureau, and shall further indicate the disposition of such cases by the metropolitan court and the traffic violations bureau;

E. All money collected by or paid into the traffic violations bureau shall be transmitted daily to the clerk of the metropolitan court;

F. The traffic violations bureau shall obtain and furnish the police department with suitable forms in triplicate serially numbered for notifying traffic violators to appear in answer to charges of violating traffic ordinances or traffic regulations of the city. The traffic violations bureau shall take receipts for such forms delivered to the police department and shall require a report from the police department on the disposition of such forms, which report shall be kept available at all times for inspection by the judge of the metropolitan court and the finance director or his authorized representative. Alternatively, the traffic violations bureau, police department, parking enforcement patrol and its contractors may utilize electronic forms for notifying traffic violators to appear in answer to charges of violating traffic ordinances or traffic regulations of the city, so long as there are equivalent ways to ensure that such forms are retained in duplicate copy (which may also be in electronic form) as reliably as the method specified above. (Ord. BL2021-646 § 2, 2021; prior code § 12-1-12)

Article VI. Probate Court—County Judge

2.56.300 Alcohol Diversion and Preventive Treatment (ADAPT) program supervisory authority.

The supervision, control and budget of the ADAPT Program is transferred from the State Trial Courts of Davidson County to the probate court of Davidson County. (Ord. 91-97 § 1, 1992)

Article VII. Justice Integration Services

2.56.400 Creation.

There is hereby created the justice integration services of the metropolitan government (JIS). (Ord. BL2003-42 § 1, 2003; Ord. 92-415 § 1, 1992)

2.56.410 Purpose.

The purpose of the JIS is to improve the administration of justice through the creation and operation of comprehensive integrated management information systems and to promulgate and implement minimum uniform standards for all participating agencies. The goals to be accomplished are to: (1) create a modern simplified system or systems for managing justice information; (2) provide quick and easy access to information; (3) expedite case processing; (4) enhance productivity and efficiency by the use of technology; (5) reduce costs and increase revenue; and (6) plan for future needs. (Ord. 92-415 § 2, 1992)

2.56.420 Membership.

Those eligible for membership in JIS are all metropolitan government elected and/or appointed officials, departments, and/or agencies involved in the administration of justice, including, but not limited to the following: Chancery court judges, circuit court clerk, circuit court judges, clerk and master, criminal court clerk, criminal court judges, district attorney general, juvenile court clerk, juvenile court judge, metropolitan general sessions court judges, probate court judge, public defender, police department, sheriff, criminal justice planning unit, and office of family safety. (Ord. BL2016-311 § 2, 2016; Amdt. 1 to Ord. 92-415, 10/6/92; Ord. 92-415 § 3, 1992)

2.56.430 Policy committee.

The policy committee will be the primary decision and policy making entity of the JIS. The policy committee shall coordinate, approve and implement the design, development and operation of the JIS. Only members of the JIS shall be eligible to serve on the policy committee. The policy committee shall adopt bylaws to provide for the governance of the JIS. (Ord. 92-415 § 4, 1992)

2.56.440 Presiding officer.

Pursuant to the bylaws, the members of JIS shall select a presiding officer who shall act as the administrative head of JIS and who shall serve in that capacity for

a term established by the bylaws. (Ord. 92-415 § 5, 1992)

2.56.450 Powers.

The JIS shall have the power to:

A. Establish bylaws, policies, procedures and standards for the development and ongoing management of justice related information systems which will be integrated;

B. Enforce the bylaws, procedures, policies and standards set by the JIS;

C. Provide a centralized mechanism for the acquisition and maintenance of all justice related automated solutions;

D. Employ such persons and maintain such facilities as are necessary to exercise the powers and perform the duties of JIS within its budgetary limitations;

E. In conformity with applicable legal requirements of the metropolitan government, authorize or enter into contracts and purchase or lease such equipment, software, services and supplies as necessary to exercise the powers and perform the duties of the JIS; and

F. Take such other actions as are necessary to further the purpose of the JIS. (Ord. 92-415 § 6, 1992)

2.56.460 Duties.

The JIS shall have the duty to:

A. Provide assistance to each of the JIS participating agencies in assessing their automation needs;

B. Provide an accounting of revenues collected by JIS on behalf of each participating agency (when amounts are attributable to a participating agency);

C. Provide each JIS agency with supportive services in the form of installation, training and maintenance for JIS approved hardware and software which is not shared between two or more JIS agencies;

D. Provide each JIS agency with supportive services in the form of installation, training, electronic back-up and maintenance for hardware, software and data that is shared between two or more JIS agencies;

E. Provide services to ensure data integrity within the parameters established by the policy committee; and

F. Insure that all automated solutions conform to the general government-wide standards of the metropolitan government and participate in the formulation and revision of those standards. (Ord. 92-415 § 7, 1992)

2.56.470 Exemption.

All employees of the JIS shall be exempt from the classified service and from civil service regulations. (Ord. 92-415 § 8, 1992)

Article VIII. Traffic Safety School and DUI School*

2.56.500 Creation of general sessions court traffic safety school.

There shall be established, under supervision of the general sessions court, a school to be known as the general sessions court traffic safety school. (Ord. BL2010-687 § 1, 2010)

2.56.510 Traffic safety school eligibility.

In addition to all other fines, fees, costs and punishments now prescribed by law, the driver of any motor vehicle upon his conviction by any judge or plea of guilty or submission to fine for any offense involving a moving traffic violation prescribed by law may be required, at the discretion of the court, to attend a traffic safety school approved by the Tennessee Department of Safety in addition to, or in lieu of, any portion of any other penalty imposed. (Ord. BL2010-687 § 1, 2010)

2.56.520 Traffic safety school staffing and records.

The traffic safety school shall maintain training agency status with the National Safety Council. The traffic safety school shall be staffed with administrative personnel and instructors. All instructors shall be certified by the National Safety Council. The traffic safety school shall maintain records showing the names of attendees, dates of attendance, and whether such attendees satisfactorily completed the course. (Ord. BL2010-687 § 1, 2010)

2.56.530 Traffic safety school fee.

The traffic safety school is authorized to charge a fee of up to ninety dollars for enrollment in each traffic safety class. The traffic school is authorized to charge a fee of up to thirty-five dollars for rescheduling a missed class. (Ord. BL2010-687 § 1, 2010)

2.56.540 Permissible use of traffic safety school fees collected.

All fees collected for the traffic safety school shall be deposited in the general fund of the general services district to assist in covering the expenditures for instruc-

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*__Editor's note—__Ord. BL2010-687, § 1, approved June 18, 2010, amended article VIII in its entirety to read as herein set out. Former article VIII, §§ 2.56.500—2.56.560, pertained to general sessions court safety center, and derived from Ord. BL2006-1092, § 2, 2006; Amdt. 1 with Ord. BL 2004-262 §§ 1—4, 2004; Ord. BL2000-432 §§ 1—3, 2000; Ord. 99-1557 § 1 (part), 1999.

tor salaries, equipment, and materials. (Ord. BL2010-687 § 1, 2010)

2.56.550 Creation of sheriffs office DUI school.

There shall be established, under supervision of the Davidson County Sheriffs Office, a school to be known as the DUI school. All persons attending the school shall pay an enrollment fee in an amount up to two hundred twenty dollars per class to offset the costs of referral, screening, and education services. Different levels of classes may carry different enrollment fees, but no enrollment fee shall exceed two hundred twenty dollars. The DUI school shall be responsible for all documentation and reports required by state and local law, including reports to the general sessions court, criminal trial courts, circuit courts, and their designated probation departments. The sheriffs office is authorized to charge a fee of up to twenty dollars for rescheduling a missed session. The sheriffs office is authorized to charge an additional administrative fee of up to thirty-five dollars if individuals are referred to treatment by the DUI school. Persons referred to the DUI school for an alcohol and drug assessment only shall pay a fee of up to fifty dollars to the DUI school for coordination, processing, and completion of the assessment. (Ord. BL2010-687 § 1, 2010)

2.56.560 DUI school staffing and records.

The Davidson County Sheriffs Office shall maintain DUI school licensure requirements with the State of Tennessee, Tennessee Department of Health, or other State of Tennessee agencies designated to license qualified DUI schools. The sheriffs office shall furnish instructors and other administrative personnel to staff the DUI school and maintain records in compliance with state regulations for DUI schools. (Ord. BL2010-687 § 1, 2010)

2.56.570 Permissible use of DUI school fees collected.

All fees collected for the DUI school shall be deposited in the general fund of the general services district to assist in covering the expenditures for instructor salaries, equipment, and materials. (Ord. BL2010-687 § 1, 2010)

Article IX. Pre-Trial Release Program

2.56.600 Pre-trial release program.

Pursuant to T.C.A. Sections 7-2-108(a)(13) and 8-8-201(33), the Davidson County sheriff's office is authorized to administer the operation of the metropolitan government's pre-trial release program which was created pursuant to T.C.A. Section 40-11-116 and the metropolitan government's long range plan concerning jail overcrowding. (Ord. BL2003-100 § 1, 2004)

2.56.610 Supervision fee—Exemption.

A. The Davidson County sheriff's office is authorized to charge each defendant who is not exempt under subsection B of this section, a processing fee of thirty-five dollars. The said fee shall be collected by the Davidson County sheriff's pre-trial release program in order to defray operational costs.

B. The Davidson County sheriff's office is authorized to certify criminal defendants as indigent for the purposes of exempting such persons from the processing fee as provided in subsection A of this section. (Amdt. 1 to Ord. BL2003-100 § 3, 1/21/04; Ord. BL2003-100 §§ 2, 3, 2004)

Chapter 2.60

METROPOLITAN NASHVILLE AIRPORT AUTHORITY

Sections:

Article I. General Regulations

2.60.010 Definitions.
2.60.020 Application of chapter provisions.
2.60.030 Rules and regulations—Adoption and amendment.
2.60.040 Liability limitations.
2.60.050 Commercial activity.
2.60.060 Contracts and leases—Filing requirements.
2.60.070 Tenants—Construction conditions.
2.60.080 Tenants—Sign restrictions.
2.60.090 Schedule of use charges.
2.60.100 Storage of property and equipment.
2.60.110 Restricted areas.
2.60.120 Roads and walkways.
2.60.130 Lost and found articles.
2.60.140 Accident reports.
2.60.150 Emergency conditions.
2.60.160 Abandoning property.
2.60.170 Advertising restrictions.
2.60.180 Animals.
2.60.190 Disorderly conduct, public intoxication, gambling and other nuisances.
2.60.200 Firearms and hunting.
2.60.210 Injuring or destroying property.
2.60.220 Loitering.
2.60.230 Photography.
2.60.240 Picketing and demonstrations.
2.60.250 Sanitation requirements.
2.60.260 Soliciting.
2.60.270 Enforcement authority.

Article II. Motor Vehicles and Parking

2.60.280 Traffic regulations applicable.
2.60.290 Operation of motor vehicles on roadways.
2.60.300 Motorized equipment operations.
2.60.310 Taxicabs, buses and similar services.
2.60.320 Parking of vehicles—Towing authority.
2.60.330 Procedure in case of accidents.
2.60.340 Repair or cleaning of motor vehicles.
2.60.350 Weight limitations for vehicles.

Article III. Aeronautical Operations

2.60.360 FAA regulations applicable.
2.60.370 Closing the airport—Authority.
2.60.380 Operation requirements and restrictions.
2.60.390 Taxiing of aircraft.
2.60.400 Helicopter operations.
2.60.410 Engine run-up procedures.
2.60.420 Parking of aircraft.
2.60.430 Repair areas and restrictions.
2.60.440 Disabled aircraft.

Article IV. Safety and Fire Prevention

2.60.450 Compliance with safety and fire prevention regulations.
2.60.460 Fueling operations.
2.60.470 Spillage of fuels or hazardous substances.
2.60.480 Runway foaming specifications.
2.60.490 Housekeeping and fire preventative measures.

Article I. General Regulations

2.60.010 Definitions.

The following words, terms or phrases where used herein shall have the meanings herein respectively ascribed as follows:

"Aircraft" means any contrivance now known or hereafter designed, invented, or used for navigation of flight in the air, except a parachute or other contrivance used primarily as safety equipment.

"Aircraft movement area" means the runways, taxiways, and other areas of the airport which are utilized for taxiing, takeoff, and landing of aircraft exclusive of loading ramps and parking areas.

"Airline passenger" means any person who enters the airport terminal with the intention of boarding an air carrier, supplemental air carrier or air taxi commuter aircraft, within a reasonable time, for another destination. Within the purview of these rules and regulations, such person ceases to become an airline passenger when he reaches his airport destination, claims his baggage and intends to depart the terminal area.

"Air operations areas" means any areas of the airport used or intended to be used for landing, takeoff, or surface maneuvering of aircraft as defined and established in Part 107 "Airport Security" of the Federal Aviation Regulations (14 CFR Part 107), effective March 18, 1972.

"Airport" means and includes any one or more airports or heliports and related facilities, including but not limited to land and interest in land, facilities for storage of air and space craft, navigation and landing aids, taxiways, pads, aprons, control towers, passenger and cargo terminal buildings, hangars, administration and office buildings, garages, parking lots, and such other structures, facilities, and improvements necessary or convenient to the development and maintenance of airports and heliports, and for the promotion and accommodation of air and space travel, commerce and navigation.

"Airport authority" means the Metropolitan Nashville Airport Authority created pursuant to the Metropolitan Airport Authority Act, Acts 1969, Chapter 174, codified in Tennessee Code Annotated, Section 42-4-101 et seq., and Resolution 70-872 of the council of the Metropolitan Government of Nashville and Davidson County, Tennessee.

"Airport employee" means the authorized airport personnel of all organizations, activities, governmental agencies, located on or connected with the operation, maintenance, and servicing of the airports.

"Airport property" means all property that any metropolitan government, city, county or town which, pursuant to a resolution of its governing body, shall have sold, leased, dedicated, donated or otherwise conveyed to the airport authority in order to make such airport properties an operational part of its system, and/or any property acquired in the future by the airport authority.

"Baggage" means such articles, effects and other personal property checked for transport or carried by an airline passenger as are necessary or appropriate for wear, use, comfort or convenience in connection with his trip. It includes both checked and unclaimed baggage.

"Board" means the board of commissioners of the Metropolitan Nashville Airport Authority appointed by the mayor and approved by the council of the Metropolitan Government of Nashville and Davidson County, Tennessee.

"Commercial operations" means all operations of aircraft for commercial purposes, or any type operation or activity being conducted on the airport.

"Executive director" means the executive director and chief administrative officer of the Metropolitan Nashville Airport Authority (acting directly or through his designated representatives).

"Fixed-base operator" means any other person, organization, or sublessee engaged in business of an aviation nature conducting transient aircraft services and being authorized to conduct such business by virtue of a contract with the airport authority in compliance with specified minimum standards.

"Motor vehicle" means any self-propelled wheeled, tracked vehicle or trailer hitched on to a motor vehicle for the convenience of people or goods on airport property, or for the service and maintenance of equipment or property.

"Participating municipality" means any metropolitan government, city, county or town which, pursuant to a resolution of its governing body, shall have sold, leased, dedicated, donated or otherwise conveyed its airport to the airport authority for operation by the authority in order to make such airport an operational part of its system.

"Person" means any individual, firm, corporation, partnership, company, association, joint stock association, or political body, and includes any trustee, receiver, assignee or other representative thereof.

"Public area" means those areas including the various concessions, restrooms and terminal lobby sections used for public thoroughfares, gathering, waiting, and viewing; streets and roads, sidewalks, and all other areas, except tenant facilities, normally used by the general public. All other areas are to be considered operational or restricted areas, and access is permitted only upon expressed consent of the executive director.

"Restricted areas" means areas which are closed to the general public. These areas are defined as areas which are used to perform the everyday activities and operations of the airports. These areas include, but are not limited to airport operation areas, tenant-leased operational areas, perimeter operational roads, and locations having access to air operational areas. These areas are restricted to use by authorized agencies and personnel while engaged in their respective airport duties.

"Sterile concourse" means the concourse areas of the terminal that an airline passenger must enter into or exit in order to enplane or deplane an aircraft, subject to Federal Aviation Regulations Part 121.538 and 121.7.

"State" means the State of Tennessee.

"Visitor" means any person who is not an airport tenant, airport employee or airline passenger. (Prior code § 4A-1-1)

2.60.020 Application of chapter provisions.

A. All users of and persons on the airport shall be governed by the rules and regulations set out in this chapter, and the directions of the executive director and/or his designated representative.

B. These regulations are not intended to amend, modify or supersede federal, state or local law.

C. If any portion of these regulations shall be invalid or unenforceable, all other portions shall remain in effect and be construed to achieve the purposes hereof. (Prior code § 4A-1-2)

2.60.030 Rules and regulations—Adoption and amendment.

A. Rules and regulations, and amendments thereto, will be issued as needed by the executive director of the airport authority, or his designated representative. Proposed rules and regulations, and amendments thereto, shall be issued by posting a copy on the public notice bulletin board in the airport administration offices, and by sending a copy to each airport(s) tenant primarily affected. Upon such posting and notification, any person, within fifteen days, may submit written comments and proposed changes to the executive director.

B. Thirty days from issuing a proposed rulemaking, the executive director or his representative will hold a hearing, at which time persons may appear either in opposition to or in favor of the rulemaking. The date of such hearing shall be established in the notice of proposed rulemaking. Following that hearing, the executive director will either issue a revised rule or amendment, if deemed appropriate, or issue notification that the original rulemaking has been incorporated in the official rules and regulations promulgated by the airport authority. (Prior code § 4A-1-3)

2.60.040 Liability limitations.

A. The airport authority and its officers and employees, or any participating municipality, by publication of such rules and regulations, assumes no responsibility for loss, injury or damage to persons or property by reason of fire, vandalism, wind, flood, earthquake, collision, strikes or acts of God or of public enemy, nor does it assume liability for injury to persons while on airport(s) or while using the facilities of same, or for property damage.

B. All persons shall conduct activities and render services upon the airport property in a safe, responsible and efficient manner, and shall be solely liable for having properly trained and instructed their agents and/or employees for such purposes. (Prior code § 4A-1-4)

2.60.050 Commercial activity.

A. No person shall utilize any portion of the airport property of any structure thereon for any commercial activities except under terms of a lease, contract or permit executed with the airport authority.

B. No person or corporation operating any facility on the airport shall discriminate or permit discrimination against any person or group of persons in any manner prohibited by Part 15 of the Federal Aviation Regulation, or any other applicable federal, state or local regulation or law.

C. Persons or corporations operating facilities on the airport shall operate in such a way as to fully protect the airport and its environs from any environmental pollution, either through the air or water. They will operate in accordance with Metropolitan Ordinance 68-554, entitled "An Ordinance Amending the Metropolitan Code, Charter 4, Subchapter 1, by providing for Air Pollution control within the Metropolitan Government Area." They will abide by all rules, regulations and administrative orders issued by the State Stream Pollution Control Board or other state agency responsible for environmental pollution. Also, they will obey all rules, regulations and orders relating to environmental pollution promulgated by the federal government, and specifically those promulgated under Public Law 91-258, 91st Congress, entitled "Airport and Airway Development Act of 1970." Should the Metropolitan Airport Authority be required by any department of the federal government to take any action in order to be eligible for any federal funds and this action relates to the property leased hereunder, then these persons and/or corporations will, at their own expense, take such action necessary to comply. (Prior code § 4A-1-5)

2.60.060 Contracts and leases—Filing requirements.

A. A copy of all contracts entered into by the Metropolitan Nashville Airport Authority shall be filed with the purchasing agent of the metropolitan government and with the metropolitan clerk.

B. A copy of all the leases entered into by the Metropolitan Nashville Airport Authority shall be filed with the public property administration of the metropolitan government and with the metropolitan clerk. (Ord. 90-1339 § 1 (2-6), 1990; prior code § 2-1-19)

2.60.070 Tenants—Construction conditions.

A. Prior to any alteration, repair and/or construction of leased buildings or ground surface, the airport tenant must submit such proposal to the planning and engineering division of the airport authority for construction plan and specification procedures.

B. All phases of construction must meet federal, state, local and Metropolitan Nashville Airport Authority requirements. (Prior code § 4A-1-21)

2.60.080 Tenants—Sign restrictions.

A. Any tenants planning a sign installation shall first obtain from the planning and engineering division of the airport authority general guidelines for signing.

B. Prior to any construction of a sign or signs, the tenant shall secure a permit from the metropolitan codes administration as well as approval from the airport authority. (Prior code § 4A-1-22)

2.60.090 Schedule of use charges.

Charges for use of airport property and related facilities will be as determined and established by the airport authority. (Prior code § 4A-1-23)

2.60.100 Storage of property and equipment.

A. Unless otherwise provided in a lease or other agreement, no person shall use any area of the airport for storage of property without the permission of the executive director.

B. No tenant or lessee on the airport property shall store or stock material or equipment in such a manner as to constitute a hazard to personnel, passengers of the carriers, or property. (Prior code § 4A-1-18)

2.60.110 Restricted areas.

A. No person shall enter any airport property area or building posted as being closed to the public, with the exception of the following:

1. Persons assigned to duty therein under authorization of airport tenant and/or the executive director or his designated representative,

2. Persons authorized under contractual agreements with the airport authority,

3. Authorized representatives of the Federal Aviation Administration,

4. Persons engaged, or about to be engaged, or having been engaged in the operation of any aircraft;,

5. Passengers under appropriate supervision entering ramp operational areas for the purpose of enplaning or deplaning on aircraft,

6. Police or fire personnel with equipment in case of an emergency;

B. Restricted areas at the Nashville Metropolitan Airport as designated in the airport master security plan and required by the Federal Aviation Regulations of Part 107. These areas cover the following:

1. All persons authorized access to any air operations area must have an identification badge or be under escort by an officer of the airport safety and security division, or their designated representative,

2. The operator of each ground vehicle authorized access to any air operation area must display upon the vehicle visual identification, such as a decal or sign, while operating in that area,

3. All persons, upon entering the airline terminal passenger holdroom concourses must be screened, along with X-ray of their baggage and investigation of personal items. Airline tenants and employees with authorized identification badges may be cleared for entry into the concourses through positive recognition by the screening personnel,

4. All doors in the terminal sterile concourses must be kept locked and/or controlled that enter to a ramp air operational area. (Prior code § 4A-1-24)

2.60.120 Roads and walkways.

No person shall travel on the airport property other than on roads, walks or places provided for the particular class of traffic. (Prior code § 4A-1-13)

2.60.130 Lost and found articles.

Finders of a lost article shall turn same into the airport lost and found service or, if during other than normal working hours, to the safety and security specialist on duty. If the article is not claimed by its owner within sixty days after it is deposited, it may be returned to the finder. (Prior code § 4A-1-16)

2.60.140 Accident reports.

All persons involved in any accident, including aircraft or automobile, occurring on the airport property, shall make a full report to the executive director or a safety and security officer on duty, as soon after the accident as possible. When a written report of an aircraft accident is required by the federal aviation regulations, a copy of such report may be submitted to the executive director in lieu of the report required above. (Prior code § 4A-1-25)

2.60.150 Emergency conditions.

A. Emergency conditions existing on the airport property will not mitigate or cancel any existing condition.

B. All persons, vehicles and taxiing aircraft shall yield right-of-way to emergency equipment.

C. All persons shall move to areas so directed when an emergency exists in the terminal building. (Prior code § 4A-1-26)

2.60.160 Abandoning property.

No person shall abandon any personal property on the airport property. Any personal property so abandoned shall be disposed of in the manner described by applicable laws or statutes. (Prior code § 4A-1-19)

2.60.170 Advertising restrictions.

No person or organization shall pass, distribute or display signs, advertisements, circulars, printed or written matter on airport property, or any structure thereon, without a permit approved by the executive director in accordance with the airport authority regulations or in accordance with the provisions of a lease executed with the airport authority. A copy of such regulations may be secured from the secretary of the authority at his office

on the fourth floor of the main airport terminal. (Prior code § 4A-1-7)

2.60.180 Animals.

A. No person may enter the airport with a domestic or wild animal without written permission of the executive director, except:

1. Persons entering any part of the airport property other than the terminal buildings, air freight, or other restricted areas, with a domestic animal that is kept restrained by a leash, or is confined so as to be completely under control;

2. Persons entering terminal buildings or air freight areas with a domestic animal, such as a dog or cat, that has to be transported by air and is confined in a suitable transportation container;

3. Blind or deaf persons may enter the terminal or gate without permission of the executive director.

B. No person may ride horseback on the airport property without permission of the executive director. (Prior code § 4A-1-12)

2.60.190 Disorderly conduct, public intoxication, gambling and other nuisances.

A. No person shall be or become intoxicated or drunk, commit any disorderly, obscene or indecent act, or commit any act of nuisance, nor conduct, or engage in any form of gambling, or violate any federal, state or local laws on the airport property.

B. No person shall deposit litter upon the floors of airport buildings or upon sidewalks, roads or grounds of the airport. (Prior code § 4A-1-10)

2.60.200 Firearms and hunting.

Hunting or the discharge of firearms on the airport property is prohibited, unless permission has been authorized by the executive director. (Prior code § 4A-1-14)

2.60.210 Injuring or destroying property.

A. No person shall destroy, injure, deface or disturb in any way any building, sign, equipment, marker or other structure, tree, flower, lawn or other property on the airport.

B. Any person damaging any light fixture, security lock mechanism, door or gate, pavement or turf surface on airport property by malicious intent or by operation of a vehicle or aircraft, shall be cited as facts so warrant, and be fully responsible for any costs required to repair or replace the damaged facility. (Prior code §§ 4A-1-17, 4A-1-20)

2.60.220 Loitering.

No person may loiter or loaf on any part of the airport property. If a loitering or loafing person is told by a safety and security officer to move on or leave the airport property, he shall do so. (Prior code § 4A-1-9)

2.60.230 Photography.

No person shall take still, sound or motion pictures for commercial use on airport property without the approval of the executive director or his designated representative. This does not apply to those taken on lease airport tenant areas for private or promotional purposes. (Prior code § 4A-1-15)

2.60.240 Picketing and demonstrations.

No person shall walk in a picket line as a picket, or take part in any labor or other public demonstration on any part of the airport property, except in those places which may specifically be assigned for use of such picket lines or other public demonstrations by a permit approved by the executive director in accordance with airport authority regulations. A copy of such regulations may be secured from the secretary of the authority at his office on the fourth floor of the main airport terminal. Such permit is also subject to applicable federal, state and participating municipality laws. (Prior code § 4A-1-8)

2.60.250 Sanitation requirements.

No person shall dispose of garbage, papers, refuse or other material on airport property except in the receptacles provided for that purpose, nor use comfort stations other than in a clean and sanitary manner, nor expectorate on the floors, walls or other surfaces of any airport facility. (Prior code § 4A-1-11)

2.60.260 Soliciting.

The soliciting of business, fares, alms or funds for any purpose on airport property is prohibited without a permit approved by the executive director in accordance with airport authority regulations. A copy of such regulations may be secured from the secretary of the authority at his office on the fourth floor of the main airport terminal. (Prior code § 4A-1-6)

2.60.270 Enforcement authority.

The uniformed officers of the airport authority safety and security division and/or officers of participating municipalities are empowered to require compliance with these rules and regulations. No authority is either hereby expressed or implied, however, that would permit any individual other than the executive director to change, alter or amend these rules and regulations. The executive

director is authorized to interpret and construe these regulations wherever necessary, either by directive of general or specific application, and his interpretations and construction shall be deemed a part of the regulations and binding upon all persons. (Prior code § 4A-1-27)

Article II. Motor Vehicles and Parking

2.60.280 Traffic regulations applicable.

Motor vehicle operation on airport property shall be governed by the provisions of the metropolitan traffic and parking commission, Tennessee Code Annotated, as amended, code of laws of the municipality in which the airport is located, relevant private acts, and such regulations as instigated from time to time by the authority. (Prior code § 4A-1-36(a))

2.60.290 Operation of motor vehicles on roadways.

Motor vehicles shall be operated by a licensed driver in strict compliance with posted stop, yield, pedestrian, parking, road direction, road height clearance, and speed limit traffic signs. (Prior code § 4A-1-37(b))

2.60.300 Motorized equipment operations.

A. No motorized equipment shall be operated on the aircraft parking ramps, the airport landing area or airport perimeter roads except:

1. By persons assigned to duty thereon;
2. By persons authorized by the executive director;
3. By persons escorted by safety and security vehicle.

B. No vehicle shall be allowed to enter upon the aircraft movement area, either day or night, unless equipped with a radio with two-way communications with the FAA control tower, or escorted by a vehicle so equipped; provided, however, for tractors, mowers, tugs and equipment employed in the maintenance of the field, mowing of grass, etcetera, radios shall not be required.

C. No vehicle may enter the landing area until clearance has been given by the control tower; provided, however, that such vehicles not requiring radio as provided above shall enter upon the aircraft movement area proper after FAA control tower has been notified by telephone concerning necessary movements, and permission granted for such movement. It is the responsibility of all vehicle operators to be conversant with the standard airport light signals, regardless of whether vehicle is radio equipped. (In the absence of a control tower, the assigned airport supervisor may grant the right to enter aircraft movement areas).

D. Operators of motorized equipment on aircraft parking areas, ramp service roads, baggage make-up and delivery claim road areas, shall operate such equipment with extreme caution, and shall not at any time exceed a speed of fifteen miles per hour. The maximum baggage or freight-cart train shall consist of one tug and four tandem carts.

E. No person shall operate any motorized vehicle upon any area of the airport if such vehicle, with or without towed equipment, is so constructed, equipped or loaded so as to be a danger, or is likely to endanger persons or property. All persons riding in any motorized vehicle shall be seated in seats permanently affixed to the vehicle.

F. All motorized vehicles, while operating upon an aircraft ramp area, shall pass to the rear of taxiing aircraft and shall not be driven between a parked aircraft and its loading gate while enplaning or deplaning activities are in effect. (Prior code § 4A-1-37(a))

2.60.310 Taxicabs, buses and similar services.

Any person operating taxicabs, limousines, buses, courtesy limousine service and car rentals from the airport must have authorization for such activities under terms of a lease, contract or permit with the airport authority. Such operations are limited to parking locations and procedures as set forth in their specific agreement with the airport authority. (Prior code § 4A-1-37(e))

2.60.320 Parking of vehicles—Towing authority.

A. No person shall park a motor vehicle for loading or unloading, or any other purpose on the airport property other than in the areas specifically established for parking and in the manner prescribed by signs, lines or other means.

B. No person shall park a motor vehicle in an area requiring payment for parking thereon without paying the required parking fee, nor in a manner so as to obstruct roadways, nor in aircraft parking areas, nor in grass areas.

C. Employees of organizations or agencies having tenancy in the airport authority building areas may park private vehicles in the employee parking lots as designated by the executive director. Only those vehicles bearing an authorized parking sticker properly affixed to the rear bumper shall be allowed to park in the employee lots (exception will be the temporary permit issued by safety and security). Registration of vehicles for stickers shall be made with the safety security division office, and

the fees for permits established by the authority will prevail. Registration of vehicles and issuance of decal permits will be renewed on a yearly basis.

D. No person shall abandon any motor vehicle on airport property.

E. The executive director shall have the authority to tow or otherwise move vehicles which are parked by their owners or operators on the airport property in violation of the regulations of the authority, state or local laws, or regulations at the operator's expense and without liability for damage which may result in the course of such moving. (Prior code § 4A-1-37(d))

2.60.330 Procedure in case of accidents.

The driver of any vehicle involved in an accident on the airport which results in injury to any person or damage to any vehicle or property shall immediately stop such vehicle at the scene of the accident, and report such accident to the metropolitan airport safety and security office, or to the applicable police or sheriff departments in which the airport is located. The operator of such vehicle, within a reasonable time after the occurrence, shall make other reports as may be required by and in accordance with federal, state and municipal laws and regulations. (Prior code § 4A-1-37(f))

2.60.340 Repair or cleaning of motor vehicles.

No person shall clean or make any repairs to motor vehicles anywhere on the airport property other than in designated shop areas, except minor repairs necessary to remove such motor vehicles from the airport property, nor shall any person move, interfere with, or tamper with any motor vehicle part, instrument, or tool thereof, without permission of the owner or satisfactory evidences of the right to do so duly presented to the executive director. (Prior code § 4A-1-37(c))

2.60.350 Weight limitations for vehicles.

Motor vehicles with axle load exceeding forty-two thousand five hundred pounds are not permitted upon aircraft parking areas, service or perimeter roads without approval of the executive director. (Prior code § 4A-1-36(b))

Article III. Aeronautical Operations

2.60.360 FAA regulations applicable.

All aeronautical activities at the airport, and all flying of aircraft within the airport traffic area shall be governed by the current federal air regulations, Federal Aviation Administration, Civil Aeronautics Board Rules and Regulations, and all directives and instructions issued by the FAA control tower. (Prior code § 4A-1-28)

2.60.370 Closing the airport—Authority.

A. The executive director and his duly authorized representatives shall have the right at any time to close the airport in its entirety, or any portion thereof, to air traffic, to delay or restrict any flight or any portion thereof to any specified class of aircraft, or to any individual or group, when he considers any such action to be necessary and desirable to avoid endangering persons or property, and to be consistent with the safe and proper operation of the airport.

B. In the event the executive director and his duly authorized representatives believe the condition of the airport to be unsafe for landings and takeoffs, or in violation of the rules, regulations and standards of the airport operations manual in accordance with Part 139 of the federal aviation regulations, it shall be within his authority to issue, or cause to be issued, a NOTAM (notice to airmen) closing the airport to any portion thereof. (Prior code § 4A-1-29(a))

2.60.380 Operation requirements and restrictions.

A. No aircraft shall be operated on the surface of any airport runway, taxiway, ramp or aircraft parking and storage area in a careless or negligent manner, or in disrespect of the rights and safety of others, or without due caution and at a speed likely to unreasonably endanger persons or property, or while the pilot or other persons aboard controlling any part of the operation thereof is under the influence of intoxicating liquor, or any narcotic or habit-forming drug, or if such aircraft is so constructed, equipped or loaded as to endanger or to be likely to unreasonably endanger persons or property.

B. Prior notification from the executive director and his duly authorized representatives is required before landing and takeoff is permitted on the airport of aircraft with a total gross weight in excess of the following:

Metropolitan Airport.

Aircraft with Dual Wheels: Runway 2L-2OR, 170,000 pounds; 2R-2OL, 40,000 pounds; 13-31, 75,000 pounds.

Dual Tandem Wheels: Runway 2L-2OR, 360,000 pounds; 2R-2OL, 74,000 pounds; 13-31, 113,000 pounds.

Smyrna Airport.

Aircraft with Dual Wheels: Runway 14-32, 55,000 pounds; 18-36, 44,000 pounds.

Dual Tandem Wheels: Runway 14-32, 92,000 pounds; 18-36, 70,000 pounds.

Single Wheels. Runway 14-32, 15,000 pounds; 18-36, 30,000 pounds.

Springfield Airport.

Aircraft with Single Wheels: Runway 3-21, 15,000 pounds.

C. No aircraft exceeding a gross weight of twelve thousand five hundred pounds shall be permitted to make a one-hundred-eighty-degree turn on any asphalt runway or taxiway on airport property, unless required to do so due to an operational necessity. The owner of an aircraft causing damage to the asphalt surface while executing an unauthorized one-hundred-eighty-degree turn on a runway or taxiway on airport property shall be responsible for the cost of repair to the surface. (Prior code § 4A-1-29 (b)—(d))

2.60.390 Taxiing of aircraft.

A. If provided, no person shall taxi or tow an aircraft upon the aircraft movement area of the airport until they have received a clearance from the control tower. Also, no person shall taxi or tow an aircraft upon the ramp, approved parking space or hangar area until they have ascertained that there will be no damage of collision with other aircraft, persons or objects in the immediate area.

B. Aircraft not equipped with brakes shall have an attendant at a wing when the aircraft is taxied near buildings or other aircraft.

C. Aircraft awaiting takeoff shall stop short of the painted holding lines and in a position so as to have a direct view of aircraft approaching for landings. Aircraft are to hold at painted lines opposite the critical zone sigh on painted marking during IFR conditions.

D. Aircraft entering and departing the airline terminal ramp are to use taxiway leadoffs nearest to their gate or ramp parking location, i.e., Taxiways A, B, D, E or as directed by FAA control tower. When an aircraft is parked at Gate 20 (Terminal Garden Gate), air carrier jet aircraft are prohibited to depart the north terminal ramp via ramp leadoff Taxiway C.

E. Aircraft entering and departing leased ramp areas on the east side of the airport are to use taxiway leadoffs to the adjacent taxiway, i.e., 2R-20L, 5-23, 13-31 or 15-30. Aircraft taxiing via ramp between leased areas is prohibited. (Prior code § 4A-1-30)

2.60.400 Helicopter operations.

A. No persons shall park a helicopter in any area on the airport property other than as prescribed by the executive director.

B. Helicopter aircraft arriving and departing the airport shall use that portion of the aircraft movement area or designated helicopter clear areas as directed by the FAA control tower.

C. Helicopter aircraft shall avoid taxiing or parked fixed-wing aircraft.

D. During landings and takeoffs, helicopters shall not pass over any airport buildings, structures, their adjacent auto parking areas, or passenger concourse. (Prior code § 4A-1-35)

2.60.410 Engine run-up procedures.

A. No person shall start or run any engine in an aircraft unless a competent person is in the aircraft attending the engine controls. Chocks shall always be placed in front of the aircraft wheels before starting the engine unless the aircraft is provided with adequate parking brakes.

B. Aircraft shall not perform engine run-up or prolonged test operations in any area that would result in a hazard or nuisance to other aircraft, persons, or property, and in no case at any terminal gate position. At no time shall engines be run-up for test or maintenance purposes between the hours of eleven p.m. and six a.m. without prior approval by the executive director, and at a designated location on the east side of the airport. (Prior code § 4A-1-32)

2.60.420 Parking of aircraft.

A. No person shall park aircraft in any area on airport property other than as prescribed by the executive director.

B. Aircraft parked on areas of leased airport property shall be under the lessee's control and liability.

C. Parking of aircraft on the airline and airfreight terminal ramps at the Nashville Metropolitan Airport is to comply with regulations of the airport master security plan, as required under Part 107 of the Federal Aviation Regulations, and is restricted as follows:

1. Aircraft of the certificated air carriers, nonscheduled supplemental air carriers and air taxi commuters, when parking at airline gate locations, are with the consent and control of the airline to which the gate is assigned.

2. Other aircraft needing to park on the airline terminal ramp to enplane or deplane passengers are to park at Gate 20, which has access into the terminal main lobby by control of an airport security officer stationed at that location. Aircraft parking at this location which is limited in size and subject to jet blast, are restricted as follows:

a. The aircraft shall park within the ramp area bounded by the terminal garden security fencing and double yellow lines painted upon the ramp surface. Aircraft are to be parked with parking brakes on and navigation lights left on during hours of darkness.

b. Aircraft entering and departing this location are to yield to other aircraft and ground service vehicles that may be traversing the outer ramp area.

c. Due to the limited space available for parking at this location, pilots are to expedite their deplaning and enplaining operations and remain with the aircraft.

d. Since this parking location provides no tiedown facilities, ground rods for refueling, or parking attendants, no fueling of aircraft is permitted, and the aircraft operator agrees to waive any rights to damages from the authority or its board of commissioners or agents, servants or employees, and further agrees to hold harmless in case of a claim or suit by the owner or holder of any interest in the aircraft.

3. Aircraft parking upon the air freight terminal ramp shall park within the double yellow lines upon the ramp pavement. No part of the aircraft shall extend past the yellow lines.

D. If an aircraft is parked in an area other than that prescribed, or in a position that blocks a taxiway or a vehicle ramp service road, or within a runway or taxiway safety area, the operator of such aircraft, upon direction of the executive director, shall move the aircraft to an area so directed; if the operator refuses to comply with such direction, the executive director may tow the aircraft to such designated place at the operator's expense, and without liability for damage which may result in the course of such moving. (Prior code § 4A-1-34)

2.60.430 Repair areas and restrictions.

A. No person shall repair any aircraft, engine or component of an aircraft in any area of the airport property other than that specifically designated for such purpose by the executive director, except that minor adjustments and repairs may be performed on air carrier aircraft at gate positions on the terminal ramp when such repairs can be accomplished without inconvenience to other persons, and when such adjustment is necessary to prevent a delayed departure.

B. All persons engaged in the maintenance, repair and servicing of aircraft shall do so in accordance with the rules and regulations of the Federal Aviation Administration, American Insurance Association or the National Fire Protection Association, U.S. Department of Labor Occupational Safety and Health Act, airport authority, and other local governmental agencies that may be involved. (Prior code § 4A-1-31)

2.60.440 Disabled aircraft.

A. The owner or his representative, i.e., pilot or operator, shall be responsible for the prompt removal of aircraft wrecked or damaged on the airport aircraft movement areas as reasonably directed by the executive director after such aircraft has been officially released by the National Transportation Safety Board or Federal Aviation Administration Flight Standards district office representatives.

B. In case an aircraft becomes disabled while on the airport movement area, due to a flat tire, engine failure, etc., the owner or his representative shall immediately arrange for prompt removal of the aircraft by an aviation service on the airport.

C. In case the owner or his representative fails to promptly remove the wrecked, damaged or disabled aircraft, such may be removed by the executive director at the owner's or his representative's expense without liability for damage which may result in the course of or after such removal.

D. The owner or unsightly "junk" or unairworthy aircraft parked in other than closed hangars shall be responsible for the removal of same within ninety days, or sooner if, in the opinion of the executive director, such aircraft creates an image detrimental to the appearance of the airport and aviation. (Prior code § 4A-1-33)

Article IV. Safety and Fire Prevention

2.60.450 Compliance with safety and fire prevention regulations.

All persons using in any way the airport property and/or its facilities shall exercise the utmost care to guard against fire and/or injury to persons or property. (Prior code § 4A-1-38)

2.60.460 Fueling operations.

A. No person may fuel or defuel an aircraft on airport property while:

1. Its engine is running, or is being warmed by applying external heat;

2. It is in a hangar or enclosed space;

3. Passengers are in the aircraft, unless a passenger loading ramp is in place at the cabin door, the door is open, and a cabin attendant is at or near the door.

B. No person may start the engine of an aircraft on airport property if there is any gasoline or other volatile flammable liquids on the ground underneath it.

C. No person may operate a radio transmitter or receiver, or switch electrical appliances on or off in an aircraft on airport property while it is being fueled or defueled.

D. During the fueling of an aircraft on airport property, the dispensing apparatus and the aircraft must be grounded and bonded in accordance with current safety standards.

E. Each person engaged in fueling or defueling on airport property shall exercise care to prevent the overflow of fuel, and must have readily accessible and adequate fire extinguishers.

F. During the fueling and defueling of an aircraft on airport property, no persons may, within fifty feet of the aircraft, smoke or use any materials that are likely to cause a spark or be a source of ignition.

G. Each hose, funnel or appurtenance used in fueling or defueling an aircraft on airport property must be maintained in a safe, sound and nonleaking condition, and must be properly grounded to prevent ignition of volatile liquids.

H. Fire extinguishing equipment must be readily available during fueling and defueling operations.

I. A fueler must come to a full stop twenty feet from an aircraft, then directed by a person, posted as a guide, into position for servicing operation not less than ten feet from aircraft. (Prior code § 4A-1-39)

2.60.470 Spillage of fuels or hazardous substances.

A. In the event of spillage or dripping of petroleum products or any material on airport property which may cause a hazardous condition detrimental to the ground or pavement surface or an unsightly condition, the same shall be removed immediately. The responsibility for removal of such spillage or drippings shall be assumed by the operator of the equipment causing the same or by the tenant responsible for the deposit thereof.

B. No fuel, grease, oil flammable liquids, or contaminants of any kind shall be allowed to flow or be placed in any sewer or drainage system on the airport. (Prior code § 4A-1-40)

2.60.480 Runway foaming specifications.

A. The Federal Aviation Administration Advisory Circular 150/5200-4 titled "Foaming of Runways" states the following:

1. Runway foaming cannot be considered a panacea to assure that fire will not occur during an aircraft landing with a malfunctioning landing gear.

2. When this service is provided, the airport must ensure that its firefighting and rescue potential is not reduced below that which is required to comply with the airport FAA operating certification.

B. When an aircraft or a responsible official of a company or organization requests that a runway be foamed, the Nashville Metropolitan Airport CFR station will do so only under the following conditions:

1. That a stock of foam concentrate over and above that required for firefighting operations is on hand to sufficiently satisfy the runway foaming service requirements;

2. That the aircraft has sufficient fuel to await the time required for foaming that portion of a runway as requested.

Note: To foam a strip sixty feet wide by three thousand feet long requires thirty-five to forty minutes;

3. That the operator, owner or insurer of the aircraft shall pay the actual expenses arising from providing the runway foaming service. Note: To foam an area forty feet wide by two thousand feet long requires four hundred eighty gallons of foam concentrate. At the present cost of foam at eight dollars and fifty cents per gallon, this service would cost four thousand eighty dollars. (Prior code § 4A-1-41)

2.60.490 Housekeeping and fire preventative measures.

A. All persons occupying space of the airport authority shall keep the space allotted them policed and free of rubbish and accumulation of any such material. Only approved boxes, crates, paint or varnished cans, bottles or containers shall be stored in airport buildings or hangars.

B. All floors shall be kept clean and free from fuel and oil. The use of volatile or flammable solvents for cleaning floors is prohibited.

C. Approved metal receptacles shall be removed daily by persons occupying space; drip pans shall be placed under engines and kept clean and maintained in a safe manner. An overall general appearance and cleanliness shall prevail throughout the airport complex. (Prior code § 4A-1-42)

Chapter 2.61

OFFICE OF FAMILY SAFETY*

Sections:

2.61.010	**Creation.**
2.61.020	**Mission and purpose.**
2.61.030	**Powers and duties.**
2.61.040	**Personnel.**

2.61.010 Creation.

There is hereby created an office of family safety, which shall consist of a director and such employees as are deemed necessary by the director or otherwise required by this chapter. (Ord. BL2025-953 § 1, 2025)

2.61.020 Mission and purpose.

The office of family safety's passion and purpose are as follows:

A. Reduce and minimize the violent and trauma-related impacts of interpersonal violence: domestic violence, sexual assault, human trafficking, child abuse, vulnerable adult abuse, and elder abuse.

B. Provide support to victims and survivors through crisis intervention, case management, outreach and the prioritization of those cases where victims are at the highest risk of being killed or seriously injured.

C. Facilitate and guide the metropolitan government's comprehensive multi-disciplinary and collaborative approach to combating and responding to interpersonal violence.

D. Identify any gaps in the metropolitan government's response to victims and survivors and work with governmental departments, agencies, and nonprofit providers to recommend, lead, and partner to implement improvements.

E. Provide high-quality education and community-wide outreach to increase understanding of and inform response to interpersonal violence.

F. Maintain the standards of and oversee Nashville's Family Safety Centers, its collaborative partnerships, and its service providers. (Ord. BL2025-953 § 1, 2025)

2.61.030 Powers and duties.

A. Provide family safety centers within the area of the metropolitan government that are safe, inviting, and supportive to victims and survivors of interpersonal violence; ensure information provided by victims and survivors is confidential to the extent permitted by law; and oversee staff, volunteers, and partner agency personnel who work for or with the family safety centers.

B. Provide and coordinate crisis intervention and long-term client services to victims and survivors, and identify and provide heightened services and protective measures for high-risk victims and survivors as identified by utilizing evidence-based risk assessment tools. Client services will endeavor to evaluate and reduce the level of trauma and risk experienced by victims and survivors of interpersonal violence and their families, in partnership with criminal justice, civil-legal, law enforcement, and social service agencies.

C. Advise the metropolitan government on evidence-based best practice policies, procedures, and practices that affect the safety and well-being of victims and survivors and their families.

D. Oversee the process of creating recommendations related to interpersonal violence within the metropolitan government and oversee the implementation of those recommendations.

E. Provide education, training, and outreach for metropolitan government employees, partners, and the public regarding interpersonal violence, high-risk abuse, trauma-responsive work, national best practices, and other critical topics; and engage in direct outreach to marginalized and underserved populations to ensure they are aware of the services provided by family safety centers.

F. Seek and use grant funding and award and manage funding to nonprofit organizations. The funding received and disbursed is to be used to aid in accomplishing departmental objectives and oversee the implementation and budgeting of such awards.

G. Establish and annually review agreements with partner metropolitan government departments and nonprofit agencies, and convene, oversee, and manage interpersonal violence response coordination and collaboration with those entities.

H. Create an annual report describing the office of family safety services, multi-disciplinary teamwork, and training, as well as outreach provided by family safety centers. This report and other reports the office of family safety deems of value shall be delivered to the mayor and vice mayor.

I. Maintain data pertaining to office of family safety programming for future use in projections and policy decisions.

J. Upon request, respond to mass violence incidents with metropolitan police for the purposes of trauma reduction and support. (Ord. BL2025-953 § 1, 2025)

*__Editor's note—__Ord. BL2025-953, § 1, adopted Sept. 2, 2025, set out provisions intended for use as Ch. 2.64. At the editor's discretion, to prevent duplication of chapter numbers, these provisions have been included as Ch. 2.61, §§ 2.61.010—2.61.040.

2.61.040 Personnel.

The director of the office of family safety shall be appointed by the mayor. The director and employees shall be unclassified service employees. (Ord. BL2025-953 § 1, 2025)

Chapter 2.62

MAYOR'S OFFICE OF FILM AND SPECIAL EVENTS

Sections:

2.62.010	**Creation.**
2.62.020	**Definitions.**
2.62.030	**Duties and powers to regulate film activities.**
2.62.040	**Duties and powers to regulate special events.**
2.62.050	**Duties and powers to regulate banner program.**
2.62.055	**Duties and powers to administer certification mark program for use of certification marks, "Music City" and "Music City, U.S.A."**
2.62.060	**Denial, revocation and right to appeal.**
2.62.070	**Enforcement.**

2.62.010 Creation.

A. Office Created—Organization—Generally. There is created the mayor's office of film and special events, which shall consist of a director, assistant director, and such other officers and employees as may be deemed necessary by the director. The director shall be appointed by the mayor and shall be an unclassified service employee.

B. Powers and Functions of Office—Generally. The mayor's office of film and special events shall promote economic development in the Metropolitan Nashville and Davidson County area by facilitating the development and growth of film activity and special events by:

1. Attracting and facilitating film activity and special events;

2. Regulating that activity through a centralized permit system;

3. Maintaining a master calendar of filming and special events;

4. Sponsoring selected special events with in-kind support;

5. Facilitating the promotion of public events through a banner program;

6. Initiating, promoting, financing, obtaining sponsorship for and executing special events.

C. Duties of Director—Generally.

1. The director shall perform the executive functions of the office.

2. The director shall have the authority to promulgate rules and regulations consistent with the powers and functions of the office.

3. The director shall be responsible for collecting fees and issuing permits to applicants in compliance with the terms of this chapter.

4. The director shall have authority to close streets to the extent required by an approved special event or filming activity, provided that the director receives a favorable recommendation from the department of public works and the metropolitan police department.

The director shall request the recommendation of the department of public works and the metropolitan police department, which shall review a request based on the following criteria:

a. Whether the proposed street closure will unduly burden either pedestrian or vehicular traffic over the public rights-of-way; and

b. Whether the proposed street closure will significantly impede or hinder a route necessary for emergency vehicles.

Special events or filming activities which require street closures for more than ten days may only be authorized by a resolution of the metropolitan council.

5. The director shall have the authority to enter into film location agreements ("licenses") with parties desiring to use metropolitan government property for the purposes of filming or photographing, except where under the Charter other boards and commissions have the exclusive authority to enter into such agreements. These licenses shall be subject to the approval of the board, commission or department head directly responsible for the property. Each license shall be subject to the approval of the department of insurance and a metropolitan attorney, and shall be filed in the office of the metropolitan clerk. Fees for the use of the property shall be established by the director, and the board of parks and recreation or the board of education where appropriate, to ensure that the metropolitan government is reimbursed for any costs incurred by the granting of each license.

D. Duties of the Assistant Director—Generally. The assistant director shall assist applicants in:

1. Completing applications for filming permits, special event permits and banner permits;

2. Serving as the liaison between the applicant and all metropolitan government departments involved in the special event or film activity;

3. Gathering information regarding all special events and film activity, and maintaining a master calendar of such events for the city;

4. Identifying locations for special events, filming and the placement of banners. (Ord. 99-1591 § 1, 1999; Ord. 98-1127 § 1, 1998; Ord. 97-983 § 1 (part), 1997)

2.62.020 Definitions.

As used in this chapter:

"Applicants" means those persons responsible for the organization of the proposed special event or filming, and who have applied for a special event or filming permit.

"Established special event" means a special event which has occupied an identifiable time and place for the past two years running and which may reasonably be expected to occupy that time and place in the upcoming year.

"Filming" means activity attendant to staging or shooting motion pictures, television programs (except current news programs), commercials and music videos.

"Metropolitan events" are public events directly related to a recognized function of the metropolitan government and which are in substantial part initiated, financed and executed by the city.

"Person" means an individual, or a corporation, firm, partnership, association, organization or any other group acting as a unit.

"Special event" means a temporary outdoor public gathering reasonably expected to attract more than seventy-five participants and spectators, and which involves one or more of the following on public property or on private property where otherwise prohibited: (1) closing a street; (2) restricting access to public property; (3) sale of merchandise, food, or beverage; (4) erection of a tent larger than four hundred square feet; (5) installation of a stage, band shell, grandstand, bleacher, trailer, van or portable toilets for public use.

"Street" means any public way, road, highway, street, avenue, boulevard, parkway, alley, lane, viaduct, bridge, and the approaches thereto, sidewalks or other public rights-of-way within the metropolitan government area. (Ord. 97-983 § 1 (part), 1997)

2.62.030 Duties and powers to regulate film activities.

A. Permit Required. A permit is required for a filming activity when:

1. The activity involves the use of public property or impacts the public right-of-way; including but not limited to: on street parking, interruption of vehicular or pedestrian traffic flow; placement of flats, lights, cameras or other equipment on public property; or

2. The activity involves filming on public property.

No person shall allow or conduct filming activities as referenced above, without a permit from the mayor's office of film and special events. Any violations of this requirement shall be handled in accordance with the enforcement provisions of 2.62.070.

B. Procedures for Film Permit Application—Deadlines.

1. Applications for filming permits shall be filed no later than three days prior to filming. Applications filed less than three days in advance shall be handled on a case-by-case basis, and may be approved where the tardiness of the application neither detracts from the filming, nor overburdens the office or any other metropolitan government office, agency or property.

2. The application for a film permit shall be forwarded to all affected departments immediately. The assistant director shall review the application and the recommendations of the various departments, and shall advise the director as to the merits of the application.

3. The director may approve or deny the application, or approve the application with conditions relating to the factors listed in subsection D of this section. The director's approval shall be contingent on the applicant's compliance with the insurance, indemnification and security requirements of subsection G of this section.

C. Film Permit Application—Information Required. The application for a film permit shall contain the following information, as well as any information deemed reasonably necessary by the director to determine whether the filming activity complies with the requirements of this chapter:

1. The proposed time, date and location of the filming;

2. A brief narrative description of the proposed filming;

3. A list of persons responsible for film activity, and reliable means of contacting those persons;

4. A list of any street closings are requested;

5. A brief statement detailing whether utility services, such as electricity or water, will be required;

6. Whether any "no parking" signs are to be posted, or parking meters covered.

D. Evaluation of Permits. In evaluating a permit application, the director shall consider:

1. Whether the applicant has complied with the requirements of this code and rules promulgated by the director;

2. The extent of the filming activity's demand on metropolitan government's support services;

3. The ability of the organizers to execute the planned filming activity;

4. The impact on vehicular and pedestrian traffic and safety.

E. Other Metro Permits Required. The fact that a permit is issued under this chapter, or is not required by this chapter, shall not replace or render unnecessary any other permit required by law. Although the office may

assist in or offer advice concerning other permits, other permits required by the metropolitan government must be applied for and secured separately.

F. Payment of Fees. The permit application must be accompanied by the payment of a thirty dollar permit fee, and in addition a one hundred dollar administrative fee for the cost of processing the application for an event being held within the right-of-way permit high impact area (as defined in Metropolitan Code Section 13.20.030.D.1.), in the form of checks or money orders payable to the mayor's office of film and special events. For events being held outside of the right-of-way permit high impact area, the administrative fee for the cost of processing the application shall be fifty dollars, in the form of checks or money orders payable to the mayor's office of film and special events.

G. Other Permit Considerations.

1. Insurance. Bonds and insurance may be required pursuant to the rules and regulations promulgated by the director in agreement with the safety and insurance department of the metropolitan government.

2. Indemnification. The applicant must execute a written agreement to indemnify the metropolitan government and its officers and employees against all claims of injury or damage to persons or property, arising out of the special event or filming.

3. Priority. Where applications to use facilities overlap or conflict, preference shall be given to that application which was filed earliest, provided that no special event or filming permit shall be approved which would displace an "established special event" from its customary time and place.

4. Off-duty police personnel or vehicles must be hired or utilized in accordance with all ordinances, regulations or policies governing such activity. (Amdt. 1 to Ord. BL2016-235 § 4, 2016; Ord. BL2016-235 § 4, 2016; Ord. 97-983 § 1 (part), 1997)

2.62.040 Duties and powers to regulate special events.

A. Permit Required or Not Required.

1. A permit is required for a special event when the special event involves the use of public property or impacts the public right-of-way.

2. A permit is required for a metropolitan event.

3. A permit is required for a special event when the special event is held on public property, except in the following instances:

a. When the event is held at the Nashville Convention Center; or

b. When the event is held at a facility owned by the sports authority of the Metropolitan Government of Nashville and Davidson County; or

c. When the event is held at the Municipal Auditorium; or

d. When the event is wholly contained within the property controlled by the metropolitan board of parks and recreation, unless it is determined by the director of parks and recreation, that the event will likely have a significant impact on vehicle or pedestrian traffic outside the park, in which case the director of parks shall require the event holder to obtain a special events permit in addition to any permits required by the department of parks and recreation.

No person shall allow or conduct a special event as referenced above, without a permit from the mayor's office of film and special events. Any violations of this requirement shall be handled according to the enforcement provisions of Metropolitan Code of Laws Section 2.62.070.

B. Procedures for Special Event Permit Application—Deadlines.

1. Applications for special event permits shall be filed no earlier than one year prior to the event, and no later than forty-five days prior to the event. Applications filed less than forty-five days in advance shall be handled on a case-by-case basis, and may be approved where the tardiness of the application neither detracts from the planning of the event, nor overburdens the office, nor any other metropolitan office, agency or property. Late applications which are approved shall be subject to a fifty-dollar late fee.

2. Upon receipt of an application the assistant director shall process the information and distribute it to the departments affected by the special event. The departments shall have ten working days to review the application and shall then return it to the assistant director with a recommendation for approval, approval conditioned on the adaptation of changes, or denial, based on the event's compliance or potential for compliance with that department's rules and regulations. In the event a department recommends denial of a permit, that denial shall be accompanied with a list of specific reasons for the decision, and suggestions how to bring the event into compliance with that department's rules, regulations and law.

3. The assistant director shall review the application and the recommendations of the various departments, and shall advise the director as to the merits of the application.

4. The director may approve or deny the application, or approve the application with conditions relating to the factors listed in subsection D of this section. The director's approval shall be contingent on the applicant's compliance with the insurance, indemnification and security requirements of subsection G of this section.

C. Permit Application—Information Required. The application for a special event permit shall contain the following information, as well as any information deemed reasonably necessary by the director to determine whether or not the event or filming complies with the requirements of this chapter:

1. The proposed time and location of the special event;

2. A brief narrative description of the proposed special event;

3. A list of persons responsible for planning the special event, and reliable means of contacting those persons;

4. The estimated attendance of the special event;

5. Whether food or alcoholic beverages will be served at the special event;

6. A list containing details of any temporary outdoor structures, signs or banners which are proposed;

7. A list of any street closings requested;

8. A brief statement detailing whether utility services, such as electricity or water, will be required.

D. Evaluation of Permits. In evaluating a permit application, the director shall consider:

1. Whether applicant has complied with the requirements of this code and rules promulgated by the director;

2. The ability of the event organizers to successfully execute the planned special event;

3. Wear and tear on public facilities, especially those which are frequently the site of such events;

4. The impact on vehicular and pedestrian traffic and safety.

E. Other Metro Permits Required. The fact that a permit is issued under this chapter, or is not required by this chapter, shall not replace or render unnecessary any other permit required by law. Although the office may assist in or offer advice concerning other permits, other permits required by the Metropolitan Government of Nashville and Davidson County must be applied for and secured separately.

F. Payment of Fees. The permit application for special events, except for metropolitan events, must be accompanied by the payment of a two hundred and thirty dollar permit fee, and in addition a one hundred dollar administrative fee for the cost of processing the application for an event being held within the right-of-way permit high impact area (as defined in Metropolitan Code Section 13.20.030.D.1.), in the form of checks or money orders payable to the mayor's office of film and special events. For events being held outside of the right-of-way permit high impact area, the administrative fee for the cost of processing the application shall be fifty dollars, in the form of checks or money orders payable to the mayor's office of film and special events.

G. Other Permit Considerations.

1. Insurance. Bonds and insurance may be required pursuant to the rules and regulations promulgated by the director in agreement with the safety and insurance department of the metropolitan government.

2. Indemnification. The applicant must execute a written agreement to indemnify the metropolitan government and its officers and employees against all claims of injury or damage to persons or property, arising out of the special event.

3. Security Plan Required. The applicant must work with the designated representative from the metropolitan police department in designing a plan for security at the event. The plan shall be reasonable in light of the number of participants and the nature of the event. Off-duty police personnel or vehicles must be hired or utilized in accordance with all ordinances, regulations or policies governing such activity.

4. Sanitation Deposit. If the director anticipates attendance to be greater than one thousand persons, then the applicant shall post a five-hundred-dollar sanitation deposit which shall be refunded if the applicant restores the area to its condition prior to the festival. If the applicant fails to restore the property to its prior condition, then the applicant shall be liable to the metropolitan government for any costs incurred in restoring the property after the event. Surrender of the deposit in no way relieves the applicant of the responsibility for any costs incurred by the metropolitan government in excess of the five-hundred-dollar deposit.

5. Priority. Where applications to use facilities overlap or conflict, preference shall be given to that application which was filed earliest, provided that no special event or permit shall be approved which would displace an established special event from its customary time and place. (Res. RS2016-391 § 3, 2016; Amdt. 1 to Ord. BL2016-235 § 5, 2016; Ord. BL2016-235 § 5, 2016; Ord. 97-983 § 1 (part), 1997)

2.62.050 Duties and powers to regulate banner program.

A. Power to Regulate Banner Program. The mayor's office of film and special events shall also be responsible for placement of banners on utility poles throughout the downtown area of Metropolitan Nashville and Davidson County.

B. Application Process.

1. Application for banner placement should be made at the office of film and special events.

2. The office will schedule the hanging of banners on a first-come, first-served basis. The mayor's office of film and special events will take reservations for utility pole use up to one year in advance of the event.

3. To ensure that banners are hung properly, artwork and plans should be submitted to the mayor's office of film and special events at least six weeks prior to the date that the banners will be hung. If the sponsoring group does not carry through with its intention to utilize the utility poles, the office reserves the right to revoke approval of that group's use of the poles and to grant use of the poles to others. All deposits will be forfeited.

C. Advertisers. Authorization to place banners on utility poles on city streets will be restricted to organizations advertising cultural, entertainment, artistic and sporting events or other matters of public interest. No advertisement of businesses, products or other private and personal messages will be allowed on side-mounted pole banners. The event being advertised will be the dominant message on the banner with any message from the corporate sponsor covering a minor portion of the banner's surface.

D. Fees and Deposits. The fee for the installation and removal of banners will be twelve dollars per pole, payable by check or money order to the mayor's office of film and special events. In addition, an administrative fee of one hundred dollars shall be paid for the cost of processing the application for an event being held within the right-of-way permit high impact area (as defined in Metropolitan Code Section 13.20.030.D.1.), in the form of checks or money orders payable to the mayor's office of film and special events. For events being held outside of the right-of-way permit high impact area, the administrative fee for the cost of processing the application shall be fifty dollars, in the form of checks or money orders payable to the mayor's office of film and special events. The total cost of hanging all banners requested will be paid at the time of the application.

E. Duration. Banners may be put in place no more than two weeks prior to the advertised event and must be removed within one week after the close of the event. Banners may be picked up at the metropolitan department of public works after the banners are removed from the poles. Banners will be kept for a period of thirty days after which any unclaimed banners will be disposed of or destroyed.

F. Reservation for Use by the Metropolitan Government. The mayor's office of film and special events reserves the right to place publicly owned banners of general interest on utility poles at any time poles are not otherwise in use. (Amdt. 1 to Ord. BL2016-235 § 6, 2016; Ord. BL2016-235 § 6, 2016; Ord. 97-983 § 1 (part), 1997)

2.62.055 Duties and powers to administer certification mark program for use of certification marks, "Music City" and "Music City, U.S.A."

A. Definitions.

"License" means an agreement between the metropolitan government and a qualified user that sets forth the terms for using the marks.

"Marks" means the certification marks "Music City" and "Music City, U.S.A."

"Nashville Metropolitan Statistical Area" or "Nashville MSA" means and includes the counties of Cheatham, Davidson, Dickson, Williamson, Rutherford and Sumner, Tennessee.

"Qualified user" means persons or businesses involved in providing goods and services that include recorded musical products, cassettes, records, music videos, compact discs, live musical entertainment services, music publishing services, music recording and production services, radio and television musical production services, and radio and television musical broadcasting services located in the Nashville MSA, who meet the criteria set forth in subsection D of this section.

B. Power to Administrator Certification Mark Program. The mayor's office of film and special events shall be responsible for all administration concerning the grant, denial, or termination of using the marks, "Music City" and "Music City, U.S.A." for users that meet the criteria set forth in subsection D of this section.

C. Application Process.

1. All applications for using either "Music City" or "Music City, U.S.A." should be made at the office of film and special events.

2. The office of film and special events shall be empowered to collect application fees and renewal fees in such amounts as are established by the office of film and special events, and approved by resolution of the metropolitan council.

3. Applications shall be approved by a subcommittee of the mayor's film advisory board that meets monthly, or at such times as are necessary, provided the applicant meets the criteria set forth in subsection D of this section.

4. Appeals from the denial of an application for using the marks "Music City" or "Music City, U.S.A." shall be made in writing to the mayor's film advisory board and scheduled for a hearing at one of its regularly scheduled meetings.

D. Certification Mark Criteria. The certification criteria used in determining whether to issue a license to use the marks "Music City" or "Music City, U.S.A." shall be as follows:

1. Is the company or organization that is providing the services/goods headquartered in the Nashville MSA or does it otherwise have a significant place of business in the Nashville MSA where decisions regarding the content and quality of the services/goods to be certified are made?

2. Are the services/goods being provided by means of entertainers, producers, or other persons who have their primary residences or primary place of business in the Nashville MSA?

3. Are the facilities of Nashville MSA-based production, recording, or broadcasting studios being primarily used to originate the services?

4. To what extent, in marketing and advertising the services or goods, are they directly tied to the Nashville MSA as their origin? Conversely, are there attempts in marketing or advertising the services or goods to connect them to some geographic area other than Nashville MSA?

E. Contents of Application. The contents of the application shall be on such forms as may be promulgated by the metropolitan department of law and at a minimum must require the applicant to: (1) submit a specimen showing exactly how and in what form the mark will be used; and (2) an application fee for administrating processing of applications for use of the marks.

F. Grant of License. The office of film and special events shall be empowered to grant revocable one year licenses with a right to renew the same for additional terms not exceeding one year, unless terminated pursuant to subsection G of this section. All renewals granted hereunder shall be conditioned on the licensee certifying in its renewal application that all facts in the license are true and correct and that there have been no changes in the application submitted to the office of film and special events at the time of such renewal.

G. Immediate Termination of License. In addition to such other rights of termination as may be set forth in the license, the metropolitan government, through the office of film and special events, shall have the right to immediately terminate a license by giving written notice to the qualified user if the qualified user uses the marks in a manner that is in any way inconsistent with the terms of the license.

H. Fee Approval. All fees assessed by the mayor's office of film and special events hereunder must be approved by resolution of the metropolitan council that receives at least twenty-one affirmative votes. (Amdt. 1 with Ord. 98-1127 §§ 2, 3, 1998)

2.62.060 Denial, revocation and right to appeal.

A. Denial and Revocation of Permits. The director may revoke a permit if the operation of the special event, filming or banner permit is in violation of this code or any other applicable law, or if the applicant has submitted false or misleading information material to the permit application, or if such revocation is necessary to preserve the health or safety of the public. Written notice of the director's intent to revoke the permit shall be mailed or delivered to the applicant, and the applicant shall have an opportunity to be heard on the issue, provided that the director may summarily suspend a permit where necessary to prevent an immediate threat to the health, welfare or safety of the public.

B. Denial and Revocation—Appeal. Any party whose application for a permit has been denied, or whose permit has been revoked, may appeal the decision to the special committee of the mayor's film and special events advisory board. The director shall send the applicant or permit holder by certified mail, return receipt requested, written notice of the denial or revocation and of the right to an appeal. The applicant or permit holder may appeal the decision of the director to the special committee of the mayor's film and special events advisory board, within ten days of the receipt of the notice. The special committee shall convene and hold a hearing within thirty days of receiving notice of the applicant's or permit holder's appeal. (Ord. 97-983 § 1 (part), 1997)

2.62.070 Enforcement.

A. Offenses. A person commits an offense of this chapter if he commences or conducts filming or a special event:

1. Without a film or special event permit; or

2. In violation of any provision of a film or special event permit, this chapter, or any other ordinance or applicable law.

B. Penalty.

1. A person who violates a provision of this chapter or a requirement of a special event permit is guilty of a separate offense for each day or part of a day during which the violation is committed or continued.

2. Each offense is punishable by a fine not to exceed five hundred dollars for a violation of a provision of this chapter or a requirement of a filming or special event permit. (Ord. 97-983 § 1 (part), 1997)

Chapter 2.63

OFFICE OF HOMELESS SERVICES

Sections:

2.63.010	**Creation.**
2.63.020	**Duties of office.**
2.63.030	**Personnel.**
2.63.040	**Director.**

2.63.010 Creation.

There is hereby created an office of homeless services, which shall consist of a director and other such officers and employees as may be deemed necessary by the director. (Ord. BL2021-971 § 1, 2022)

2.63.020 Duties of office.

The duties of the office of homeless services shall include, but not limited to, the following: (1) providing expertise and coordinate a community response to homelessness including the management of emergency sheltering, coordinated entry, and the homeless management information system (HMIS); (2) providing resources and outreach regarding homelessness throughout Nashville and Davidson County; (3) providing staff and resources for the Metropolitan Homelessness Commission and the Nashville Davidson County Continuum of Care Homelessness Planning Council; and (4) maintaining an inventory of direct supportive services provided by third-party organizations to homeless populations to ensure that all areas of Davidson County are adequately served provided that (a) any publication or production of such information contain prominently displayed language stating that none of the providers listed therein or thereon have been vetted, verified, reviewed or approved by the office of homeless services; and (b) nothing provided herein shall be construed as a requirement that providers register with the office of homeless services. (Amdt. 1 to Ord. BL2024-390 § 1, 2024; Ord. BL2024-390 § 1, 2024; Ord. BL2021-971 § 1, 2022)

2.63.030 Personnel.

All employees of the Homeless Impact Division of Metropolitan Social Services shall be transferred to the office of homeless services. (Ord. BL2021-971 § 1, 2022)

2.63.040 Director.

The director of the office of homeless services shall be appointed by the mayor and, if appropriate, subject to the civil service provisions of this Charter. The department of human resources shall include at least one representative of the Nashville Davidson County Continuum of Care Homeless Planning Council in the interview and evaluation process. The chair of the homeless planning council shall recommend the individual from the Homeless Planning Council to participate in the process. (Amdt. 2 to Ord. BL2021-971 § 1, 2022; Amdt. 1 to Ord. BL2021-971 § 1, 2022; Ord. BL2021-971 § 1, 2022)

Division II. Boards and Commissions

Chapter 2.64

ORGANIZATION AND OPERATION OF BOARDS AND COMMISSIONS

Sections:

2.64.010 **Applicability of chapter provisions.**
2.64.020 **Establishment of divisions and other units.**
2.64.030 **Rules and regulations for functions and personnel.**
2.64.040 **Election of officers—Certification of organization.**
2.64.050 **Organization and internal management.**
2.64.055 **Contact information for members of boards and commissions.**
2.64.060 **Membership demographic reports.**
2.64.070 **Term commencement; attendance requirements.**

2.64.010 Applicability of chapter provisions.

This chapter shall be applicable to only such boards and commissions as receive all or a part of their operating revenue from funds appropriated by the metropolitan council and are subject to the provisions of Article 12 of the Metropolitan Charter. (Prior code § 2-1-48)

2.64.020 Establishment of divisions and other units.

Each board or commission of the metropolitan government, by rules and regulations, shall establish such divisions and other units as are provided by the Metropolitan Charter and any other divisions, sections and other units which may be necessary to maintain the proper function and operation of each respective board or commission. (Prior code § 2-1-50)

2.64.030 Rules and regulations for functions and personnel.

Each board or commission of the metropolitan government shall prescribe by rules and regulations the functions of the various divisions, sections and units, officers and employees of such board or commission, and define the duties and responsibilities of all its employees. (Prior code § 2-1-51)

2.64.040 Election of officers—Certification of organization.

Within a reasonable time after its appointment by the mayor, each board or commission shall organize itself by the election of one of its members as chairman and another as vice-chairman, as provided by Section 11.105 of the Metropolitan Charter, and, upon its organization as specified herein, each board or commission shall succeed to the rights, powers, duties and obligations of its predecessor board or commission and such predecessor board or commission shall then cease to exist. The chairman of each board or commission shall certify the organization of such board or commission by letter to the metropolitan clerk, listing the officers of the board or commission and the date of their election. (Prior code § 2-1-49)

2.64.050 Organization and internal management.

A. Each board or commission having authority under the Metropolitan Charter to do so shall prepare and make available to all its employees the rules and regulations relating to the organization and internal management of such board or commission which shall include, but shall not be limited to:

1. The organizational structure of the board or commission, including a chart or table of organization therefor;

2. The positions within the organizational structure of the board or commission;

3. A pay schedule for the various offices and positions under the administrative direction and authority of such board or commission;

4. The duties and responsibilities of the various offices and positions of the board or commission;

5. The rules which will govern the general policies of the board or commission.

B. All of the rules and regulations provided for herein shall become effective only after approval of the mayor, upon recommendation by the board or commission involved, except as otherwise provided in the Metropolitan Charter. All such regulations, before being submitted to the mayor, shall be approved by the director of law as to form and legality, and they shall become effective upon being approved by the mayor. A copy of all rules and regulations pertaining to the compensation of personnel or other expenditure of funds shall be delivered to the director of finance for his information and for his action, if required.

C. All rules and regulations of administrative boards and commissions pertaining to personnel shall protect such employment status as has been required by provi-

sions of the Metropolitan Charter, and nothing in such rules and regulations shall impair or diminish the rights and privileges of employees of the former City of Nashville or of Davidson County under civil service, as provided by the Metropolitan Charter.

D. All rules and regulations of administrative boards and commissions pertaining to personnel shall protect such status as may be established by the provisions of the civil service rules and classifications and pay plans of the metropolitan government, and nothing in the rules and regulations of such boards and commissions shall impair or diminish the rights and privileges of employees who may have civil service status.

E. Each board and commission shall cause certified copies of the rules and regulations of the board or commission, as provided in this section, to be filed with the department of personnel and with the metropolitan clerk. Such rules and regulations shall be a public record.

F. The metropolitan clerk shall maintain a list of the names of the official recordkeeper for every board and commission of the metropolitan government. (Amdt. 1 with Ord. 96-525 § 1, 1996; Ord. 96-525 § 1, 1996; Ord. 92-321 § 1, 1992; prior code § 2-1-52)

2.64.055 Contact information for members of boards and commissions.

A. Members appointed to each board or commission shall provide the metropolitan clerk with a valid home, business, or mobile telephone number for publication on the nashville.gov website.

B. Members of boards and commissions shall notify the metropolitan clerk of any change in the phone number to be posted.

C. The metropolitan clerk shall notify the council rules-confirmations-public elections committee of the failure of any member of a board or commission to comply with the provisions of this ordinance. Upon receiving such notification from the metropolitan clerk, the chair of the council rules-confirmations-public elections committee shall place the matter on a publicly-noticed committee agenda at which the board or commission member in question shall have the opportunity to address the committee. (Amdt. 1 to Ord. BL2012-213 § 1, 2012; Ord. BL2012-213 § 1, 2012)

2.64.060 Membership demographic reports.

The metropolitan clerk shall submit a report to the metropolitan council and the mayor's office on or before October 1 of each year containing demographic information about every metropolitan government board and commission whose membership is elected or confirmed by the metropolitan council. Such report shall include the current demographic composition of the members of each board as compared to the demographic composition from the previous year. For purposes of this report, "demographic composition" means the percentage of racial minorities, ethnic minorities, gender identity, self-identified LGBTQ status, and self-identified disability status as disclosed on the questionnaire submitted to the metropolitan clerk at the time of confirmation. These reports shall remain posted on the metropolitan clerk's website. (Amdts. 1, 2 to Ord. BL2021-657 § 1, 2021; Ord. BL2021-657 § 1, 2021)

2.64.070 Term commencement; attendance requirements.

A. This subsection shall apply to all boards and commissions that are created by action of the metropolitan council, whether by resolution or ordinance.

B. Notwithstanding any resolution, ordinance, or other provision of this code to the contrary, the terms for all members of boards and commissions who are appointed or reappointed on or after December 1, 2024 shall be deemed to have begun the day after the term of the member who previously occupied the board or commission seat ended, provided the appointment is not filling the remainder of an unexpired term.

C. If over a one-year period, a board member or commissioner is absent for two-thirds of meetings of the full body for which a quorum is required, the board member or commissioner shall be considered to have excessive absences. The chair, vice chair, or executive director of a board or commission shall notify the metropolitan clerk of excessive absences for verification. Upon verification by the metropolitan clerk, the chair, vice chair, or executive director shall refer by letter the board member or commissioner to the chair of the council rules, confirmations, and public elections committee with a copy to the metropolitan council office. The chair shall introduce legislation at the first regular council meeting occurring at least thirty days from the date of the referral to consider removal of the board member or commissioner pursuant to Section 11.109 of the Metropolitan Charter. This subsection C. shall not apply to ex-officio members of a board or commission. (Ord. BL2024-582 § 1, 2024)

Chapter 2.68

MEETINGS OF BOARDS AND COMMISSIONS

Sections:

2.68.010	**Regular and special meetings—Location—Open to public.**
2.68.020	**Public notification of meetings.**
2.68.030	**Notice of appeal process.**

2.68.010 Regular and special meetings—Location—Open to public.

A. Each board or commission of the metropolitan government shall hold its regular and special meetings in a suitable place in one of the buildings of the metropolitan government. All meetings of metropolitan boards and commissions shall be open to the public.

B. No meeting of any board or commission of the metropolitan government shall be held on private property, but shall be held in public buildings owned by the metropolitan government. Provided, however, a board or commission may hold meetings in private buildings or on private property if such board or commission is specifically permitted to hold such meetings by a contract or lease agreement approved by ordinance adopted by the council. (Ord. BL2001-608 § 1, 2001; prior code § 2-1-47)

2.68.020 Public notification of meetings.

A. Each board or commission of the metropolitan government shall develop a policy, approved by the department of law, for providing adequate notice of all board or commission meeting dates, times, locations and agendas. Such policy shall include a procedure for submitting such information to the department of information technology services for posting on the website calendar as provided in Section 2.24.146 of this code.

B. Each board or commission of the metropolitan government shall develop a policy, approved by the department of information technology services for providing minutes of proceedings in a consistent format as soon as practicable after meeting dates. Such policy shall include a procedure for submitting agendas and minutes in a searchable electronic format for posting onto the nashville.gov website of the submitting board or commission.

C. In addition to publication on the metropolitan website as provided in subsection A of this section, the metropolitan government, each Friday, shall make available to all newspapers of general circulation published in Davidson County a calendar of all meetings of the boards and commissions of the metropolitan government scheduled for the following week, including the dates, times, locations and agendas of the boards and commissions. The publication and notification requirement contained in this section shall not prevent a board or commission from holding a meeting on shorter notice in the event of an emergency, nor shall the provisions of this section prevent the benefit board from adding individuals to the agenda of any meeting of the benefit board so long as the subject matter of the addition to be considered by the board only concerns the individual requesting to be added. For purposes of this subsection, "emergency" means any circumstance where compliance with the notice provision in this section would result in significant financial harm to the metropolitan government or applicant, and where neither the metropolitan government nor the applicant is responsible for the delay.

D. Any member of the public, upon request, shall be entitled to receive written notice by mail of the meeting date, time, location and agenda of any board or commission of the metropolitan government. Each board or commission shall maintain a list of all such persons requesting written notice and shall mail and/or e-mail such written notice in conformity with the policy adopted pursuant to subsection A of this section. Should a person fail to receive written notice as provided in this subsection, this shall not be considered lack of adequate public notice so long as all other means for notification required by state law or other applicable law have been satisfied.

E. The public notice requirements provided in this section shall be in addition to any other public notice provisions required by state law or any other applicable law or regulation. (Ord. BL2017-612 §§ 2—4, 2017; Ord. BL2004-245 § 2, 2004)

2.68.030 Notice of appeal process.

Each board or commission of the metropolitan government shall make a standard announcement at the beginning of every meeting informing the public as to the process and timeframe for appealing a decision of the board or commission. Such announcement shall advise that persons interested in appealing a decision of the board or commission seek the independent advice of legal counsel to ensure that the appeal is filed in a timely manner and that all procedural requirements have been satisfied. The language for the announcement required by this section shall be approved by the department of law. (Ord. BL2006-1050 § 1, 2006)

Chapter 2.72

RESERVED*

*Editor's note—Ord. BL2007-1382, § 2, adopted June 5, 2007, repealed Ch. 2.72, §§ 2.72.010—2.72.090, which pertained to ethical standards and derived from prior Code §§ 2-1-47.1—2-1-47.9. The user's attention is directed to Ch. 2.222.

Division III. Boards

Chapter 2.76

BOARD OF MECHANICAL, PLUMBING, AND ELECTRICAL EXAMINERS AND APPEALS*

Sections:

2.76.010	**Created.**
2.76.020	**Appointment and qualifications of members and term of office.**
2.76.030	**Organization and officers.**
2.76.040	**Compensation and removal of members.**
2.76.050	**Rules and regulations for conduct of business.**
2.76.060	**Meetings and hearings.**
2.76.070	**Quorum.**
2.76.080	**Powers and duties.**
2.76.090	**Conflicts of interest.**
2.76.100	**Appeals from decisions on gas/mechanical, plumbing, or electrical matters.**
2.76.110	**Appeals—Filing requirements.**
2.76.120	**Decisions of the board—Recordkeeping.**

2.76.010 Created.

A board of mechanical, plumbing, and electrical examiners and appeals is created. (Ord. BL2021-718 § 2, 2021)

2.76.020 Appointment and qualifications of members and term of office.

A. The board shall consist of nine members who shall have been residents of Nashville and Davidson County for not less than one year. The mayor shall appoint, reappoint, or replace members of the nine-member board, subject to confirmation by a majority vote of the metropolitan council. The board shall be composed of the following:

1. One licensed metropolitan/state gas/mechanical contractor.

2. One union, licensed metropolitan/state gas/mechanical contractor.

3. One licensed metropolitan/state plumbing contractor.

4. One union, licensed metropolitan/state plumbing contractor.

5. One registered metropolitan/state electrical contractor.

6. One union, registered metropolitan/state electrical contractor.

7. One mechanical engineer registered with the State of Tennessee.

8. One electrical engineer registered with the State of Tennessee.

9. One member from the public at large as representative of the mayor.

B. Of the nine members first appointed, four shall serve for a term of two years, three for a term of three years, and two for a term of four years. Thereafter, each member shall be appointed for a term of four years and shall serve until a successor is appointed, except that no member shall serve for more than two consecutive full terms. (Amdt. 1 to Ord. BL2021-718 § 2, 2021; Ord. BL2021-718 § 2, 2021)

2.76.030 Organization and officers.

A. Board members shall annually elect a chair and a vice-chair from among their membership. The vice-chair is authorized to act in the place of the chair and in the same capacity as the chair when the chair is unavailable.

B. The board shall be staffed by the department of codes administration. The director of codes administration or their duly authorized representative shall serve as secretary to the board and shall be custodian of the minutes and records of the proceedings of the board. (Ord. BL2021-718 § 2, 2021)

2.76.040 Compensation and removal of members.

All members of the board shall serve without compensation and may be removed from the board by the mayor for any continued absence from the meetings of the board or other just cause. Replacement of any member who resigns or is dismissed from the board shall be appointed by the mayor and confirmed by the metropolitan council in accordance with Section 2.76.020 for regular appointees. Any member appointed as a replacement shall serve only for the remainder of the term of the member replaced unless subsequently reappointed by the mayor for a full term. (Ord. BL2021-718 § 2, 2021)

***Editor's note—**Ord. BL2021-718 § 1, passed June 1, 2021, repealed the former Ch. 2.76, §§ 2.76.010—2.76.140, and enacted a new Ch. 2.76 as set out herein. The former Ch. 2.76 pertained to board of electrical examiners and appeals and derived from prior Code §§ 14-1-15—14-1-28; Ord. 89-792 § 1, 1989; Ord. 91-1526 § 1, 1991; Ord. 91-1558 §§ 1—4, 1991; Ord. 92-119 § 1, 1992; Ord. BL2010-642 § 1, 2010.

2.76.050 Rules and regulations for conduct of business.

The board shall adopt such rules and regulations as it may deem necessary to properly conduct its business, provided that all such rules and regulations shall be explicitly set forth in writing. Copies of all rules and regulations shall be filed with the metropolitan clerk. (Ord. BL2021-718 § 2, 2021)

2.76.060 Meetings and hearings.

A. The board shall establish regular meeting dates, at least one per month, for the conduct of its normal business activities, and may meet in special session on any matter before the board on call by the chairman.

B. All meetings of the board shall be open to the public and shall be held in a building under the jurisdiction of the metropolitan government. The board shall conduct a hearing on each petition brought before the board within a reasonable period following notification of such petition. In no event shall such hearing be more than thirty days following receipt of an application for examination or notice of appeal.

C. Written notice, setting forth the time and place of an examination or hearing, shall be given to each applicant or petitioner not less than ten days prior to such examination or hearing, except that the board, at its discretion, may limit such time to not less than forty-eight hours, as set forth in Section 16.16.720.C., Section 6.52.120.C., and Section 6.20.120.D. (Amdt. 1 to Ord. BL2021-718 § 2, 2021; Ord. BL2021-718 § 2, 2021)

2.76.070 Quorum.

The attendance of five members of the board shall be required to constitute a quorum for the purpose of transacting business. In the event that only five members are present, the concurring vote of at least four of those members present at the meeting shall be necessary to modify an order of the director of codes administration or in varying the application of any provisions of this chapter and Chapters 16.16, 6.52, 16.12, 6.20, and 16.20 or in the approval of any new material or method of construction or in the event the board is required to revoke or suspend any certificate or approval issued by the board. On all other matters requiring action by the board, affirmative votes of the majority present, but not less than four affirmative votes, shall be required. (Amdt. 1 to Ord. BL2021-718 § 2, 2021; Ord. BL2021-718 § 2, 2021)

2.76.080 Powers and duties.

The board shall have the following powers and duties:

A. The board shall examine all applicants for master mechanical certificate, HVAC&R certificate, and gas and appliance certificate, and upon the successful completion of such examination and payment of the required certification fee, shall issue to each applicant an appropriate certificate of registration.

B. The board shall examine all applicants for a master plumber, journeyman, and apprentice plumber's certificate, and upon the successful completion of such examination and payment of the required certification fee, shall issue to each applicant an appropriate certificate of registration.

C. The board shall examine all applicants for a master electrician's certificate, equipment installer's, and low-voltage wiring installer's license and, upon the successful completion of such examination and payment of the required licensure fee, shall issue to each applicant an appropriate license. The board shall also examine applicants for homeowner permits.

D. The board shall hear all appeals under the provisions of this chapter and Chapters 16.16, 6.52, 16.12, 6.20, and 16.20 from any decision or ruling of the director of codes administration. The board may vary the application of any provision of this chapter and Chapters 16.16, 6.52, 16.12, 6.20, and 16.20 to any particular case when, in its opinion, the strict enforcement thereof would do manifest injustice and would be contrary to the spirit and purposes of this chapter or Chapters 16.16, 6.52, 16.12, 6.20, and 16.20 or public interest, and when, in its opinion, the interpretation of the director should be modified.

E. The board may, upon presentation of satisfactory evidence in the form of material tests and technical data, approve for use under this chapter or Chapters 16.16, 6.52, 16.12, 6.20, and 16.20 any new gas/mechanical, plumbing, and/or electrical, material or method of installation not specifically covered or allowed by this chapter or Chapters 16.16, 6.52, 16.12, 6.20, and 16.20. A public hearing shall be held prior to approval or disapproval of any proposed new material or method of construction. Such hearing shall be conducted according to the rules of the board established for such hearings.

F. The board shall have the authority to revoke or suspend any certification or licensure issued by such board according to the procedures set forth in Sections 16.16.720, 6.52.120, or 6.20.120, of this Code.

G. The board shall review, discuss and vote on all proposed ordinances to change provisions of the gas/mechanical regulations set out in this chapter and Chapters 16.16, 16.12, and 16.20 and make recommendations to the director. (Ord. BL2021-718 § 2, 2021)

2.76.090 Conflicts of interest.

No member of the board shall vote on any issue before the board in which such member may have a personal interest. (Ord. BL2021-718 § 2, 2021)

2.76.100 Appeals from decisions on gas/mechanical, plumbing, or electrical matters.

The owner or their duly authorized agent may appeal to the board the decision of the director of codes administration whenever the director rejects or does not approve the mode or manner of a gas/mechanical, plumbing, and/or electrical system or installation proposed to be followed, or the materials used or proposed to be used in such gas/mechanical, plumbing, and/or electrical system or installation or in the repair of or alteration of a gas/mechanical, plumbing, and/or electrical installation, or when it is claimed that the provisions of this chapter or Chapters 16.16, 6.52, 16.12, 6.20, and 16.20 do not apply or that an equally good or more desirable form of installation or material can be employed in any specific case, or when it is claimed that the true intent and meaning of this chapter or Chapters 16.16, 6.52, 16.12, 6.20, and 16.20 or any of the rules and regulations promulgated hereunder have been misconstrued or wrongly interpreted. (Ord. BL2021-718 § 2, 2021)

2.76.110 Appeals—Filing requirements.

Notice of an appeal to the board shall be in writing, setting forth the grounds for such appeal, and shall be filed with the secretary of the board within ten days prior to the meeting of the board. A filing fee of two hundred and fifty dollars shall be paid at the time the appeal is filed with the board. (Ord. BL2021-718 § 2, 2021)

2.76.120 Decisions of the board—Recordkeeping.

A. All decisions of the board shall be in writing. Every decision of the board shall be promptly entered into the minutes of the meeting of the board and filed in the office of the director of codes administration. A copy of the minutes reflecting the board decisions shall be posted on the website for the department of codes administration.

B. The records of the board shall be open to public inspection, as herein provided. A certified copy of each decision of the board modifying a decision or ruling of the director, approving or disapproving any new material or method of construction, or revoking or suspending any certificate or approval issued by the board shall be sent by mail or otherwise delivered to the appellant or aggrieved party.

C. The board shall, in every case, render a decision without unreasonable or unnecessary delay.

D. A decision of the board varying the application of any provisions of this chapter or Chapters 6.52, 16.12, 6.20, 16.20, or 16.16 or modifying an order of the director, shall be by resolution. The resolution shall specify in what manner such variations or modifications shall be made, the conditions upon which they are made, and the reasons therefor.

E. Any decision of the board approving a new material or method of construction shall be in writing and shall stipulate the specific conditions under which such new material or method of construction may be used. The board may limit the use of any new material or method of construction to a specified use in a single instance or may approve such new material or method of construction for general use under this chapter and Chapters 16.16, 6.52, 16.12, 6.20, and 16.20 throughout the area of jurisdiction of this chapter and Chapters 16.16, 6.52, 16.12, 6.20, and 16.20.

F. Every decision of the board shall be final, according to the procedure herein established, subject, however, to such remedy as any aggrieved party may have at law or in equity.

G. When a decision of the board reverses or modifies a refusal, order, or disallowance of the director, varies the application of any provisions of this chapter or Chapters 16.16, 6.52, 16.12, 6.20, and 16.20, or approves any new material or method of construction for use under this chapter or Chapters 16.16, 6.52, 16.12, 6.20, and 16.20, the director shall immediately take action concerning such decision or recommendation to immediately carry out the decision of the board. (Ord. BL2021-718 § 2, 2021)

Chapter 2.78

BOARD OF FAIR COMMISSIONERS

Sections:

2.78.010 Additional duties.

2.78.010 Additional duties.

In addition to the duties provided in Section 11.601 of the Charter of the Metropolitan Government of Nashville and Davidson County, the board of fair commissioners (hereinafter "fair board") shall have the following duties and responsibilities:

A. The fair board shall negotiate with the Tennessee State Fair Association or other suitable nonprofit organization selected in accordance with the applicable procurement rules and regulations of the metropolitan government to hold a fair in 2011 and 2012 to be called "The Tennessee State Fair" on the existing 117-acre Tennessee State Fairgrounds site located in Council District 17. Any agreement negotiated between the fair board and the Tennessee State Fair Association or other suitable nonprofit organization shall provide that the metropolitan government shall not be liable for any financial losses associated with the operation of the State Fair.

B. The fair board shall continue to operate the expo center and related facilities on the Tennessee State Fairgrounds property at such times and in such ways as to not interfere with the operation of the Tennessee State Fair until another suitable location for these activities has been identified and approved by an ordinance of the metropolitan council.

C. Reserved.

D. The fair board is authorized to adopt rules and regulations to enable business entities, non-profits, and other organizations to sponsor the divisional fair, expo center events, flea markets, auto racing, and other programs, events, projects, facilities, and sites at the Fairgrounds Nashville. Such rules and regulations shall include, but not be limited to, the types of events, programs, facilities, and sites that may be sponsored; the size, number, and placement of sponsor signs; the use of logos; and the types of industries and products that are not eligible to become sponsors. The fair board shall have the authority to enter into sponsorship agreements with a total net value not to exceed fifty thousand dollars. All sponsorship agreements with a total net value in excess of fifty thousand dollars must be approved by resolution adopted by the metropolitan council. (Ord. BL2024-301 § 1, 2024; Ord. BL2014-667 § 1, 2014; Amdt. 2 to Ord. BL2010-820 § 1, 2011; Ord. BL2010-820 § 1, 2011)

Chapter 2.80

BOARD OF FIRE AND BUILDING CODE APPEALS

Sections:

2.80.010	**Created—Scope of activities.**
2.80.020	**Appointment, qualifications and term of members.**
2.80.030	**Organization and officers.**
2.80.040	**Compensation—Removal conditions.**
2.80.050	**Replacement of members.**
2.80.060	**Rules and regulations for conduct of business—Meetings and hearings.**
2.80.070	**Quorum—Conflicts of interest.**
2.80.080	**Variance granting authority.**
2.80.090	**Appeal procedures—Filing fee.**
2.80.100	**Appeal procedures—Filing time limit reduction conditions.**
2.80.110	**Effect of board decisions.**

2.80.010 Created—Scope of activities.

There is created a metropolitan board of building code appeals. This board shall also be the board for the metropolitan fire code. This board shall be named the board of fire and building code appeals. (Ord. 90-1253 § 5 (part), 1990; prior code § 11-1-18)

2.80.020 Appointment, qualifications and term of members.

A. The board of fire and building code appeals shall consist of nine members, who shall have been residents of the metropolitan government area for not less than one year and who shall continue to be so eligible so long as they shall serve, to be appointed by the mayor and confirmed by a majority vote of the whole membership of the metropolitan council.

B. The members of the board of fire and building codes appeals shall be qualified in one of the following fields: building and development, architecture, contracting, engineering, or fire prevention. At least three different fields must be represented on the board at any given time.

C. Of the seven members appointed after the effective date of this ordinance, one shall be appointed for a term of one year, two shall be appointed for a term of two years, two shall be appointed for a term of three years, and two shall be appointed for a term of four years. Thereafter, each member shall be appointed for a term of four years and shall serve until a successor is appointed. No member shall serve for more than two consecutive four-year terms. (Amdt. 1 to Ord. BL2022-1269 § 1, 2022; Ord. BL2022-1269 § 1, 2022; Ord. 90-1253 § 5 (part), 1990; prior code § 11-1-19)

2.80.030 Organization and officers.

Within ten days after its appointment, the board of fire and building code appeals shall organize itself by election of one of its members as chairman and another as vice-chairman. The director of codes administration or his duly authorized representative shall serve as secretary to the board and shall be custodian of the minutes and records of the proceedings of the board. (Ord. 90-1253 § 5 (part), 1990; prior code § 11-1-20)

2.80.040 Compensation—Removal conditions.

All members of the board of fire and building code appeals shall serve without compensation and may be removed from membership on the board by the mayor for continued absence from meetings of the board, physical disability, or other just causes. (Ord. 90-1253 § 5 (part), 1990; prior code § 11-1-21)

2.80.050 Replacement of members.

Replacements for any member of the board of fire and building code appeals resigning or dismissed from the board shall be appointed by the mayor and confirmed by the metropolitan council in the same manner as prescribed for regular appointees. Any member appointed as a replacement shall serve only for the remainder of the term of the member replaced, unless subsequently reappointed for an additional term. (Ord. 90-1253 § 5 (part), 1990; prior code § 11-1-22)

2.80.060 Rules and regulations for conduct of business—Meetings and hearings.

The board of fire and building code appeals shall adopt such rules and regulations as it may deem necessary to conduct its business. The board, in open meetings, shall hear all appeals, under this chapter and Chapters 10.64 Articles I and II, 16.04, 16.08 and 16.28 through 16.56 of this code, from decisions and rulings of the director of codes administration and/or the metro fire marshal. The board shall meet at regular monthly intervals. The day of the monthly meeting shall be determined by the board in its rules and regulations. (Ord. 98-1445 § 2, 1998)

2.80.070 Quorum—Conflicts of interest.

A. Five members of the board of fire and building code appeals shall constitute a quorum. In varying the application of any provisions, or in modifying any order

of the director of codes administration or fire marshal, affirmative votes of the majority present, but not less than four affirmative votes, shall be required.

B. No member of the board shall act in any case in which he has a personal interest. (Ord. 90-1253 § 5 (part), 1990; prior code § 11-1-24)

2.80.080 Variance granting authority.

The board of fire and building code appeals, when so appealed to and after a hearing may vary the application of any provision of this chapter and Chapters 10.64 Articles I and II, 16.04, 16.08, and 16.28 through 16.56, and Section 17.28.100 of this code to any particular case when, in its opinion, the strict enforcement thereof would do manifest injustice and would be contrary to the spirit and purposes of this chapter and Chapters 10.64 Articles I and II, 16.04, 16.08 and 16.28 through 16.56, and Section 17.28.100 of this code, or public interest, and when in its opinion the interpretation of the director of codes administration and/or the metro fire marshal should be modified. (Ord. BL2022-1088 § 1, 2022; Ord. 98-1445 § 3, 1998)

2.80.090 Appeal procedures—Filing fee.

Whenever the director of codes administration and/or the metro fire marshal shall reject or refuse to approve the mode or manner of construction proposed to be followed or materials to be used in the erection or alteration of a building or structure, or when it is claimed that the provisions of this chapter and Chapters 10.64 Articles I and II, 16.04, 16.08 and 16.28 through 16.56 do not apply, or that an equally good or more desirable form of construction can be employed in any specific case, or when it is claimed that the true intent and meaning of this chapter and Chapters 10.64 Articles I and II, 16.04, 16.08 and 16.28 through 16.56 or any of the regulations hereunder have been misconstrued or wrongly interpreted, the owner of such building or structure, or his duly authorized agent, may appeal from the decision of the director of codes administration and/or the metro fire marshal to the board of fire and building code appeals. Notice of appeal shall be in writing and filed within thirty days after the decision is rendered by the director and/or metro fire marshal. A fee of two hundred and fifty dollars ($250.00) shall accompany such notice of appeal. (Ord. BL2010-642 § 2, 2010; Ord. 98-1445 § 4, 1998)

2.80.100 Appeal procedures—Filing time limit reduction conditions.

In case of a building or structure which, in the opinion of the director of codes administration, is unsafe or dangerous, the director may, in his order, limit the time for such appeal to a shorter period. All appeals hereunder shall be filed with the department of codes administration on forms provided by the director. (Prior code § 11-1-26)

2.80.110 Effect of board decisions.

A. A decision of the board of fire and building code appeals varying the application of any provision of this chapter or Chapters 10.64 and Articles I and II, 16.04, 16.08 and 16.28 through 16.56 of this code or modifying an order of the director of codes administration and/or metro fire marshal shall be by resolution of the board, which shall specify in what manner such variations or modifications shall be made, the conditions upon which they are made, and the reasons therefor.

B. Every decision of the board shall be final, subject, however, to such remedy as aggrieved party or the metropolitan government may have at law or in equity. All decisions of the board shall be in writing and shall indicate the vote of each member of the board upon the decision. Every decision shall be promptly entered into the minutes of the meeting of the board and filed in the office of the director of codes administration. The records of the board shall be open to public inspection and a certified copy of each decision shall be sent by mail or otherwise to the appellant. A copy of each decision shall be kept publicly posted in the office of the director for two weeks after filing.

C. The board shall, in every case, render a decision without unreasonable or unnecessary delay.

D. If a decision of the board reverses or modifies a refusal, order or disallowance of the director of codes administration and/or metro fire marshal, or varies the application of any provisions of this chapter and Chapters 10.64 Articles I and II, 16.04, 16.08 and 16.28 through 16.56 of this code, the director of codes administration and/or metro fire marshal shall immediately take action concerning such decision or immediately enforce the decision of the board. (Ord. 98-1445 § 5, 1998; Ord. 90-1253 § 5 (part), 1990; prior code § 11-1-28)

Chapter 2.84

RESERVED*

*__Editor's note—__Ord. BL2021-718 § 1, passed June 1, 2021, repealed §§ 2.84.010—2.84.130, which pertained to board of gas/mechanical examiners and appeals and derived from prior Code §§ 19-1-20—19-1-32; Ord. 91-1527 § 1, adopted 1991; Ord. 90-1253 § 1 (part), adopted 1990; Ord. BL2010-642 § 3, adopted 2010. The user's attention is directed to § 2.76.010 et seq.

Chapter 2.88

BOARD OF PROPERTY STANDARDS AND APPEALS

Sections:

2.88.010	**Created.**
2.88.020	**Appointment, qualifications, compensation and term of office.**
2.88.030	**Organization and officers.**
2.88.040	**Quorum—Number of votes required for certain actions.**
2.88.050	**Rules and regulations for conduct of business.**
2.88.060	**Hearing petitions and procedures.**
2.88.070	**Effect of board actions—Appeals stay imposition of order.**
2.88.080	**Records of board decisions.**
2.88.090	**Control of excessive vegetation.**
2.88.100	**Appeals from director and or board decisions.**

2.88.010 Created.

There is created a metropolitan board of property standards and appeals. (Ord. BL2001-585 § 1 (part), 2001)

2.88.020 Appointment, qualifications, compensation and term of office.

A. The board of property standards and appeals ("the board") shall consist of seven members, who shall have been residents of the area of the metropolitan government area for not less than one year, and who shall continue to be eligible so long as they shall serve. Five members are to be appointed by the mayor and confirmed by a majority vote of the whole membership of the metropolitan council. Two members are to be elected by a majority vote of the whole membership of the metropolitan council. The members of the board shall serve without compensation, and may be removed from membership on the board by the mayor for continued absence from meetings of the board or other just causes. Replacements for any members that resign or are dismissed from the board shall be appointed in the same manner as prescribed for regular appointees. Any member appointed as a replacement shall serve only for the remainder of the term of the member replaced, unless subsequently reappointed for an additional term according to the procedures set forth above.

B. Each member shall be appointed for a term of four years and shall serve until the member's successor is appointed, except that no member shall serve for more than two consecutive terms.

C. Of the mayor's appointments, one member of the board shall be qualified in the field of building construction and materials, one member in the field of labor, one member in the field of finance, one member in the field of real estate, and one member in the field of business. The two members elected by the council shall be appointed at large. (Ord. BL2022-1528 § 1, 2023; Ord. BL2001-585 § 1 (part), 2001)

2.88.030 Organization and officers.

Within ten days after its appointment, the board shall organize itself by election of one of its number as chairman and another as vice-chairman. The director or the director's duly authorized representative shall serve as secretary to the board and shall be custodian of the minutes and records of the proceedings of the board. (Ord. BL2001-585 § 1 (part), 2001)

2.88.040 Quorum—Number of votes required for certain actions.

The presence of four members of the board shall be necessary to constitute a quorum for the conduct of business. The concurring vote of a majority of those members present, but not less than four affirmative votes, shall be necessary to approve or modify any order, requirement or decision of the director, or to decide in favor of either the director or the appellant on any matter upon which the board is required to pass or effect any modification. (Ord. BL2001-585 § 1 (part), 2001)

2.88.050 Rules and regulations for conduct of business.

The board shall adopt such rules and regulations as it deems necessary to conduct its business. The board, in open meetings, shall hear all appeals from decisions or rulings made by the director. (Ord. BL2001-585 § 1 (part), 2001)

2.88.060 Hearing petitions and procedures.

A. When it is claimed that the provisions of this chapter and Chapter 16.24 of this title do not apply, or when it is claimed that the true intent and meaning of this chapter, Chapter 16.24, or any of the regulations hereunder have been misconstrued or wrongly interpreted, or when the owner of any dwelling or structure affected by an order, issued in connection with the enforcement of this chapter and Chapter 16.24, feels that the owner have just cause for an appeal, the owner of such dwelling or structure, or the owner's duly authorized

agent, may request and shall be granted a hearing before the board, provided, that such person shall file in the office of the director a written petition completed pursuant to the rules, regulations, and requirements of the board, within twenty days after the date the order was served.

B. Upon timely receipt of such petition, the director shall set a time and place for a hearing before the board in accordance with its rules and regulations, and shall give the petitioner written notice thereof. At such hearing, the petitioner shall be given an opportunity to be heard and to show why such order should be modified. The hearing shall be commenced within a reasonable period after such notification and in no event less than ten days nor more than thirty days after the completed petition was filed.

C. When any person affected by an order of the director makes an appeal to the board, the councilman of the person's district shall be notified of the appeal and the time and place of such hearing. (Ord. BL2001-585 § 1 (part), 2001)

2.88.070 Effect of board actions—Appeals stay imposition of order.

A. The board, after hearing the evidence presented, may sustain or modify the provisions of the order, depending upon its findings, so as to secure the intent and purposes of this chapter and Chapter 16.24. Whenever such findings are made that strict compliance with this subchapter or any order issued hereunder would impose undue or unreasonable hardship upon the owner or occupants of property affected, the board may modify the order and extend the time limit given in the order for compliance, and may further stipulate special conditions to be met by the owner as mandatory conditions to such extension of time or modification of the order. If the board sustains or modifies such order, it shall be deemed a final order unless appealed therefrom.

B. No person or party in interest who has appealed the order of the director to the board in accordance to the provisions for appeal hereinabove set forth, shall be subject to any penalty for the violation of this chapter or Chapter 16.24 until the board has issued a final order sustaining or modifying the order of the director, with which final order the appellant refuses or fails to comply, and any appeal thereon is finally disposed of by a court of competent jurisdiction. (Ord. BL2001-585 § 1 (part), 2001)

2.88.080 Records of board decisions.

The findings and decisions of the board shall be summarized, reduced to writing, and entered as a matter of public record in the office of the director. (Ord. BL2001-585 § 1 (part), 2001)

2.88.090 Control of excessive vegetation.

The board of property standards and appeals is also empowered to hear matters involving control of excessive vegetation as set out in Chapter 10.28 of the metropolitan code of laws. (Ord. BL2017-867 § 2, 2017)

2.88.100 Appeals from director and or board decisions.

Any person aggrieved by the decision of the board or by an order of the director, may seek relief therefrom in any court of competent jurisdiction, as provided by the laws of the state. (Ord. BL2017-867 § 2, 2017; Ord. BL2001-585 § 1 (part), 2001)

Chapter 2.92

RESERVED*

*__Editor's note—__Ord. BL2021-718 § 1, passed June 1, 2021, repealed §§ 2.92.010—2.92.130, which pertained to board of plumbing examiners and appeals and derived from prior Code §§ 33-1-15—33-1-27; Ord. 91-1529 § 1, adopted 1991; Ord. BL2010-642 § 4, adopted 2010. The user's attention is directed to § 2.76.010 et seq.

Chapter 2.96

METROPOLITAN SAFETY ADVISORY BOARD

Sections:

2.96.010	**Created.**
2.96.020	**Composition—Vacancy filling.**
2.96.030	**Officers.**
2.96.040	**Meetings.**
2.96.050	**Powers and duties.**

2.96.010 Created.

There is created a metropolitan safety advisory board. (Prior code § 2-1-101.11(a))

2.96.020 Composition—Vacancy filling.

A. The safety advisory board shall consist of eight members. Seven of the members shall be appointed by the metropolitan county mayor for terms of two years and shall serve at the pleasure of the metropolitan county mayor. Three of the seven members of the board to be appointed by the mayor shall serve terms of one year, and the remaining four members to be appointed by the mayor shall serve terms of two years, with the mayor designating the length of the term of the members when they are appointed. The remaining eighth member of the board shall be a member of the metropolitan council public safety committee, who shall be a non-voting member who is elected by said committee to serve for a term of two years. In no event shall the term of the council member extend beyond the council term in which they were elected.

B. Any vacancy in the board, for any reason, shall be filled in the same manner as the original appointment, and the person filling the vacancy shall be appointed to fill out the remainder of the original term. (Ord. BL2024-582 § 7, 2024; Ord. BL2005-876 § 1, 2006; prior code § 2-1-101.11(b))

2.96.030 Officers.

The safety advisory board shall elect from its own membership a chairman and a vice-chairman, who shall serve in such capacities for one year or until a successor shall have been chosen. (Prior code § 2-1-101.11(c))

2.96.040 Meetings.

The safety advisory board shall meet at least once each three months at such time and place as established by the board, and may call more frequent meetings as necessary. (Prior code § 2-1-101.11(d))

2.96.050 Powers and duties.

The safety advisory board shall have the following powers and duties:

A. Formulate and project the goals and objectives of the metropolitan employee safety program;

B. Review the progress of the metropolitan employee safety program and recommend changes in such program as they see desirable;

C. Request information from departments and agencies of the metropolitan government as such information relates to the safety program of the metropolitan government;

D. Forward all of its findings and recommendations to the executive secretary of the metropolitan employee benefit board. (Ord. 95-1446 § 5, 1995; prior code § 2-1-101.11(e))

Chapter 2.100

METROPOLITAN TRANSPORTATION LICENSING COMMISSION

Sections:

2.100.010	**Created—Membership.**
2.100.020	**Secretary.**
2.100.030	**Jurisdiction—Licensing and rulemaking authority.**
2.100.040	**Duties of chief of police and chief traffic engineer.**
2.100.045	**Duties of the police department.**
2.100.050	**Transportation inspectors.**
2.100.055	**Director.**
2.100.060	**Laws not repealed.**
2.100.065	**Transfer of budgetary appropriation.**

2.100.010 Created—Membership.

There is created a metropolitan transportation licensing commission. Such board shall consist of nine public members. Five members are to be appointed by the mayor and confirmed by a majority vote of the whole membership of the metropolitan council. Four members are to be elected by a majority vote of the whole membership of the metropolitan council. The members shall serve without compensation for a term of two years or until their successors are appointed. Of the mayor's appointees, at least one member shall be a resident within the area of the Downtown or Gulch Central Business Improvement District; and one member shall be a representative of the hospitality sector, to be appointed by the mayor from a list of three persons recommended jointly by the board of directors Nashville Area Chamber of Commerce, the board of directors of the Nashville Convention and Visitors Corporation, and the board of directors of the Nashville Downtown Partnership. (Ord. BL2022-1528 § 2, 2023; Ord. BL2021-911 § 1, 2021; Ord. BL2000-324 § 1 (part), 2000; prior code § 39-1-1)

2.100.020 Secretary.

The commission director is designated as secretary of the metropolitan transportation licensing commission and shall serve as the custodian of its records. (Ord. BL2000-324 §§ 1 (part), 2, 2000; prior code § 39-1-2)

2.100.030 Jurisdiction—Licensing and rulemaking authority.

The metropolitan transportation licensing commission, with the support of its staff employed by the department of public works, shall have exclusive jurisdiction over the licensing and regulation of all vehicles for hire, including, but not limited to, taxicabs, wreckers, sedans, limousines, horse drawn carriages, and other passenger vehicles for hire and persons or businesses engaged in the practice of "booting" vehicles. The metropolitan transportation licensing commission, along with the metropolitan department of public works, in its role providing and employing the staff to the transportation licensing commission, shall collectively constitute the only administrative agencies for the administration of all laws and ordinances relating to the licensing and regulation of vehicles for hire and booting services. For purposes of this chapter, "booting" means to attach any device to a vehicle that prevents the vehicle from being driven.

A. There is imposed upon such commission the authority, power and duty to adopt, promulgate and enforce such rules and regulations to carry out the provisions of Chapters 12.54, 6.72, 6.74, 6.80 and 6.81 of this code, and such chapters concerning vehicles for hire as may be later enacted, which the commission deems necessary for the proper and safe operation of any business providing vehicle for hire services; provided, that such rules and regulations shall not conflict with any laws of the state, the Charter or any ordinance of the metropolitan government, nor shall such rules and regulations exceed the limits of authority granted to such commission by Chapters 12.54, 6.72, 6.74, 6.80 and 6.81, or any other chapter later enacted.

B. There is imposed upon such commission the authority, power, and duty to license all persons who may engage in the activity or business of providing vehicle for hire service to the residents and visitors of the metropolitan government and to require a permit for each vehicle for hire operated by a licensee and individual permits for each driver and/or driver helper of a taxicab, wrecker, limousine, sedan or other vehicle for hire.

C. The commission shall fix and hold a public hearing with respect to the rules and regulations to be adopted by it as provided in subsection A of this section or any proposed amendments to such rules and regulations. Such rules and regulations or any amendments thereto shall be approved by the metropolitan department of law as to form and legality, and the same shall then be filed with the secretary of the metropolitan transportation licensing commission and with the metropolitan clerk. After such rules and regulations or any amendments thereto of the commission have been so adopted in the manner herein provided, such rules and regulations shall have the force and effect of law. (Ord. BL2012-281 § 1, 2012; Ord. BL2009-443 § 1, 2009; Ord. BL2000-324 § 3, 2000)

2.100.040 Duties of chief of police and chief traffic engineer.

The chief of police of the metropolitan government and the chief traffic engineer of the metropolitan traffic and parking commission shall, in their official capacities, advise the board when requested concerning those matters of public safety and proper traffic control. (Prior code § 39-1-6)

2.100.045 Duties of the police department.

The metropolitan police department, in cooperation with the transportation licensing commission inspectors, shall enforce all laws relating to the licensing and operation of taxicabs, wreckers, limousines, sedans and other vehicles for hire and drivers, and shall report all violations thereof and all accidents involving vehicles for hire to the inspectors. (Ord. BL2000-324 § 4, 2000)

2.100.050 Transportation inspectors.

The department of public works on behalf of the metropolitan transportation licensing commission, subject to the civil service provisions of the Charter, is empowered to employ suitable persons as inspectors, their compensation to be fixed by the general pay plan of the metropolitan government. The department of public works, on behalf of the commission, shall prescribe the duties of such inspectors so as to enforce the applicable provisions of this chapter and Chapters 12.54, 6.72, 6.74, 6.80 and 6.81 of this code and such other chapters of this code relative to vehicles for hire as may later be enacted. The department of public works shall furnish the civil service commission with information pertinent to the classification of inspectors and shall certify the minimum and maximum salary range payable to the persons performing such duties and, upon approval by the civil service commission and the metropolitan council, the same shall become a part of the pay plan for the classified service. (Ord. BL2012-281 § 1, 2012; Ord. BL2000-324 § 5, 2000)

2.100.055 Director.

The department of public works, on behalf of the metropolitan transportation licensing commission, subject to the civil service provisions of the Charter, is hereby empowered to employ a director of the metropolitan transportation licensing commission, his or her compensation to be fixed by the general pay plan of the metropolitan government (the "commission director"). Such commission shall prescribe the duties of the commission director so as to promulgate and enforce the applicable provisions of this chapter and Chapters 12.54, 6.72, 6.74, 6.80 and 6.81 of this code and such other chapters of this code relative to vehicles for hire as may later be enacted. The department of public works, on behalf of the metropolitan transportation licensing commission, shall furnish the civil service commission with information pertinent to the classification of the commission director and shall certify the minimum and maximum salary range payable to the person performing such duties and, upon approval by the civil service commission and the metropolitan council, the same shall become a part of the pay plan for the classified service. (Ord. BL2012-281 § 1, 2012; Ord. BL2000-324 § 6, 2000)

2.100.060 Laws not repealed.

Nothing contained in this chapter is intended to repeal or amend Ordinance 67-132 as codified in this code under Chapter 6.72, and the metropolitan transportation licensing commission is authorized and empowered to administer the provisions of such ordinance and code sections. (Ord. BL2000-324 § 1 (part), 2000; prior code § 39-1-5)

2.100.065 Transfer of budgetary appropriation.

Any and all funds appropriated by the metropolitan council to the transportation licensing commission prior to November 1, 2012, for Fiscal Year 2012-2013 through the operating budget ordinance or by resolution appropriating funds from the General Fund Reserve Fund (4% Fund) shall be transferred to, accounted for, and managed by the metropolitan department of public works. (Amdt. 1 to Ord. BL2012-281 § 5, 2012)

Chapter 2.104

URBAN FORESTER

Sections:

2.104.010	**Definitions.**
2.104.020	**Urban forester.**
2.104.030	**Planting.**
2.104.040	**Maintenance.**
2.104.050	**Removal of hazard trees.**
2.104.060	**Tree permits.**
2.104.070	**Permitting of arborists.**
2.104.080	**Reserved.**
2.104.090	**Duties under zoning ordinance.**
2.104.100	**Educational functions.**
2.104.110	**Tree advisory committee.**

2.104.010 Definitions.

The following definitions shall apply to this chapter:

"Communications facility" means all entities providing telephone or cable television services in the community and having responsibility for keeping service lines free of hazards, including trees.

"Hazard tree" means a public tree or private tree or any portion thereof which is determined by the urban forester to create a health or safety risk to the public because the tree is dead or dying, has an infectious disease or insect problem, is injured beyond restoration, is in danger of falling, is so close to an existing or proposed public structure as to endanger such structure, creates unsafe visual clearance, interferes with public utility services or communications facility services, or poses other risks identified by the urban forester. (Ord. 93-882 § 2, 1994)

"Private tree" means a tree or shrub growing in an area owned by a private individual, business or commercial establishment, company, industry, private institution, or other area not owned by government entities. The area where a tree is "growing" shall be determined by the placement of its trunk.

"Pruning" means selective removal and thinning of the upper portions of the tree, taking into account the shape and natural structure of the tree.

"Public tree" means a tree or shrub on any and all public property, that being property owned by the metropolitan government. Such public property shall include, but not be limited to, streets, avenues, alleys, and any other public right-of-way, public parks, public buildings, hospitals and schools. The area in which a tree or shrub is considered to be growing shall be determined by the placement of the trunk.

"Public utility" means all entities in charge of electrical distribution in the community and having responsibility for keeping distribution lines free of hazards, including trees.

"Shrub" means a woody plant with a multiple stem capable of growing to a height of up to fifteen feet.

"Topping" means arbitrary removal of various portions of the tree thereby leaving stubs, with no regard for the natural structure of the tree.

"Tree" means a woody plant with a single trunk or multiple trunk capable of growing to a height of fifteen feet or more. (Ord. 93-882 § 2, 1994)

2.104.020 Urban forester.

There shall be an urban forester of the metropolitan government. The urban forester shall be an employee of the department of codes administration, under the supervision of the zoning administrator. The urban forester shall be skilled and trained in the art and sciences of municipal arboriculture and shall possess the education and experience as provided in the job description for the position as adopted by the metropolitan civil service commission. The urban forester shall be responsible for administering the programs and policies set forth in this chapter, and may propose rules and regulations designed to carry out said duties and responsibilities. Such rules and regulations shall become effective after they are approved by the metropolitan planning commission and filed with the office of the metropolitan clerk. (Ord. 93-882 § 3, 1994)

2.104.030 Planting.

A. The urban forester shall have general oversight over all tree planting undertaken by the metropolitan government, but shall have no direct supervisory power over metropolitan government employees engaged in tree planting. He or she shall insure that planting of public trees progresses in a systematic manner to assure diversity of age, classes and species. He or she shall further provide information to all Metro agencies as to appropriate tree size, density and planting techniques.

B. When requested, the urban forester shall provide information to owners of private property regarding appropriate tree species, planting techniques, and placement. (Ord. 93-882 § 4, 1994)

2.104.040 Maintenance.

A. The urban forester shall have general oversight over the maintenance of public trees, but shall have no direct supervisory power over metropolitan government employees engaged in tree maintenance. Tree maintenance may include pruning, fertilizing, watering, insect and disease control, or other tree care activities. Maintenance

may be accomplished by personnel of the metropolitan government or by contract with commercial tree care companies.

B. The practice of tree topping as opposed to branch removal at branch or trunk junctures is prohibited on all public trees without prior approval of the urban forester.

C. Pruning of public trees in the vicinity of power lines or communications facility lines shall be undertaken using drop crotch pruning and pruning to laterals, unless other pruning methods receive prior approval by the urban forester. Such prior approval may be in the form of written policies and procedures that the urban forester, working in conjunction with public utilities and communications facilities, has established, and which enumerate limited exceptions to these pruning requirements in particular circumstances. In addition, the urban forester will work in conjunction with the public utilities and communication facilities to establish a program of replacing large trees that interfere with power lines with small maturing ornamental trees.

D. When requested, the urban forester shall provide information to owners of private property regarding all aspects of tree care, including the latest techniques and procedures currently being practiced. (Ord. 93-882 § 5, 1994)

2.104.050 Removal of hazard trees.

The urban forester shall oversee the removal of hazard trees. If the tree is on public property, the urban forester shall make the risk determination and, if appropriate, will cause the tree or hazardous portion thereof to be removed. Furthermore, the urban forester may delegate responsibility for risk determinations to employees of the metropolitan board of parks and recreation and employees of the department of public works who engage in ongoing tree removal activities; provided, however, that the urban forester shall provide education to such employees, to be sure that risk determinations are made in a consistent and appropriate manner. Furthermore, emergency removal of any public tree or portion thereof that poses an immediate hazard may be undertaken by a department or agency of the metropolitan government or a public utility or communications facility without prior approval of the urban forester.

If the urban forester is informed of a private tree that falls within the definition of hazard tree, he or she shall serve notice of the risk and the need for removal, and allow thirty days for removal of the tree at the expense of the property owner.

If the owner fails to remove the tree or hazardous portion thereof, the urban forester shall authorize removal by the metropolitan government, and shall be authorized to bill the property owner for the expense of such removal.

Notwithstanding the above, emergency removal of any private tree or portion thereof that poses an immediate hazard to the public may be authorized by the urban forester.

Appropriate tree care and removal of hazard trees or portions thereof on private property is the responsibility of the property owner, and nothing in this chapter shall be construed as creating an affirmative duty on the metropolitan government to remove or cause the removal of hazard trees on private property. (Ord. 93-882 § 6, 1994)

2.104.060 Tree permits.

A. No person shall directly or indirectly damage, destroy or remove any public tree in violation of the terms of this chapter without first filing an application and procuring a tree removal permit from the urban forester, except as allowed in Section 2.104.050 hereof. Any public tree which is damaged, destroyed or removed without the permit required herein shall be repaired or replaced in the manner directed by the urban forester in accordance with accepted practices of the International Society or Arboriculture.

B. Notice of commencement and completion of the work or other activity authorized by the tree permit shall be made to the urban forester as stated on the permit issued.

C. Permits for Public Utilities and Communications Facilities. Tree permits allowing for pruning or removal of trees necessitated by the installation and/or on-going maintenance of public utilities shall be issued by the urban forester for a period of one year and may be renewed annually subject to continued compliance with the conditions of this section.

D. There is hereby established a fee of ten dollars to cover the costs of administration, including the review of permits and inspection to be charged to applicants for tree permits established by this chapter. (Ord. 93-882 § 7, 1994)

2.104.070 Permitting of arborists.

A. All individuals and firms conducting tree care and removal as a business shall be required to have a permit to engage in tree care and removal activities. Such permit shall be issued by the urban forester upon proof by the applicant that he or she, or a member of his or her firm with supervisory power over other employees, has successfully completed a test of tree knowledge given by the International Society of Arboriculture, and proof that he or she or his or her firm has a minimum of

three hundred thousand dollars of liability insurance. Firms existing at the time the ordinance codified in this chapter is enacted may be waived from the testing requirement, provided they meet the requirement within two years of the adoption of the ordinance codified in this chapter.

B. The fee for the permit referred to in Section 2.104.070(A) of arborists shall be twenty-five dollars per year. (Ord. BL2004-253 § 1, 2004; Amdt. 1 to Ord. 93-882, 3/15/94; Ord. 93-882 § 8, 1994)

2.104.080 Reserved.

Editor's note—Ord. BL2016-124, § 3, passed March 1, 2016, repealed § 2.104.080, which pertained to appeals and derived from Ord. 93-882 § 9, 1994.

2.104.090 Duties under zoning ordinance.

The urban forester shall perform the duties, if any, assigned to him or her under any tree removal permit procedures or other procedures set out in any landscaping and buffering regulations that are part of any zoning ordinance passed by the metropolitan council. (Ord. 93-882 § 10, 1994)

2.104.100 Educational functions.

The urban forester shall assist in educating the community and agencies of the metropolitan government by:

A. Providing information and public relations to citizens and groups in the city regarding trees;

B. Maintaining a prohibited tree species list;

C. Gathering information and publishing reports as needed about city tree resources;

D. Working with Metro departments and agencies such as the department of public works to improve agencies' understanding of trees and tree problems; and

E. Meeting regularly with the tree advisory committee to the metro beautification and environment commission. (Ord. 93-882 § 11, 1994)

2.104.110 Tree advisory committee.

A. Not less than four months nor more than six months after the initial employment of the urban forester, the metropolitan tree board, created and established by ordinance, shall be abolished and there is established in its place the tree advisory committee to the metro beautification and environment commission. Those members of the tree board, including ex officio members, whose terms extend beyond the date that the tree board is abolished, shall become members of the tree advisory committee until such time as their terms expire. At that time, the metro beautification and environmental commission shall appoint new members to the committee in accordance with procedures established by the commission.

B. The tree advisory committee shall have such duties and responsibilities as are conferred upon it by the metro beautification and environment commission, including but not limited to community education regarding the value of trees and proper techniques for the planting, maintenance and removal of trees. (Ord. 93-882 § 12, 1994)

Chapter 2.106

COMMUNITY REVIEW BOARD*

Sections:

2.106.010	**Creation.**
2.106.020	**Purpose.**
2.106.030	**Membership.**
2.106.040	**Board staff.**
2.106.050	**Duties of the executive director.**
2.106.060	**Powers and duties of the board.**
2.106.070	**Procedure.**
2.106.080	**Limitations.**
2.106.090	**Severability.**

2.106.010 Creation.

To reconstruct the community oversight board initially created by Metropolitan Charter Section 11.1301 and as subsequently required by Public Chapter No. 454 of the Public Acts of 2023, there is hereby created a police advisory and review committee of the Metropolitan Government of Nashville and Davidson County to be called "The Metropolitan Community Review Board" (hereinafter may be referred to as the "community review board," "MCRB," or "board"). (Ord. BL2023-1990 § 1, 2023)

2.106.020 Purpose.

The purpose of the board is to strengthen the relationship between citizens and the department of police; to ensure the timely, fair, and objective review of citizen complaints while protecting the individual rights of police officers; and to make recommendations concerning citizen complaints to the chief of police. (Ord. BL2023-1990 § 1, 2023)

2.106.030 Membership.

(a) The board shall consist of seven members, each of whom must:

(1) Possess a reputation for fairness, integrity and responsibility, and have demonstrated an active interest in public affairs and service;

(2) Be a registered voter of Davidson County; and

(3) Not be a current employee of a local governing body.

(b) Except as provided in subsection (a), membership of the board shall not be restricted based upon demographics, economic status, or employment history.

(c) All board members shall be appointed by the mayor and confirmed by a majority vote of the metropolitan council. The mayor may consider nominations from community organizations, nominations by private petition signed by fifty Davidson County residents, and nominations by members of council when determining appointments to the board. The mayor is encouraged to consider nominating at least four persons from community organizations or private petitions. Initial appointments may be selected from the existing eleven-person community oversight board. No more than two persons shall be appointed from one metropolitan council district. Initial appointments to the board shall be made for the following terms:

(1) Two members of the board shall be appointed for one-year terms;

(2) Two members of the board shall be appointed for two-year terms; and

(3) Three members of the board shall be appointed for three-year terms.

(d) Following the initial appointments, all subsequent appointments, except to fill vacancies, shall be for three-year terms. Vacancies occurring other than through the expiration of terms shall be filled for the remainder of the term of the member being replaced. No board member appointed pursuant to this chapter may serve more than two consecutive terms.

(e) Upon making the initial appointments to the board, the mayor shall designate one member of the board to convene the first regular meeting of the board. At its first regular meeting, the board shall elect one of its members to serve as chair. The chair shall serve a term of one year or until a successor is elected. The chair may appoint such other officers as the chair deems appropriate.

(f) Upon the recommendation of the majority of the board members or by a finding of the mayor, the mayor, with a majority approval of the metropolitan council, may remove any member of the board for official misconduct or neglect of duty, including for neglect of any duty specifically enumerated in subsection (j) below. Members who are absent from three consecutive regular board meetings are considered to have vacated their positions on the board and may be replaced as provided for herein. Members who cease to have the qualifications for membership on the board as provided in subsection (a) of this section shall be deemed to have forfeited their position on the board.

(g) No member of the board shall receive compensation for services performed.

***Editor's note—**Ord. BL2023-1990, § 1, adopted July 18, 2023, repealed the former Ch. 2.106, § 2.106.010, and enacted a new Ch. 2.106 as set out herein. The former Ch. 2.106 pertained to community oversight board and derived from Ord. BL2020-401 § 1, 2020.

(h) Within six months of being appointed to the board, each member shall complete the citizen's police academy course offered by the department of metropolitan police and any other training deemed appropriate by the chief of police to educate citizens on law enforcement operations, practice, and training. Members who fail to complete required courses are considered to have vacated their positions on the board and may be replaced.

(i) Members of the board shall:

(1) Respect an individual's, including a police officer's, right to privacy, and maintain confidentiality of records;

(2) Maintain the confidentiality of police department office of professional accountability files, personnel files, and other files, records, or recordings received pertaining to their membership on the board;

(3) Excuse themselves from participating in the review of any complaint in which they have a personal, professional, or financial conflict of interest; and

(4) Conduct themselves in a manner that ensures public confidence in the fairness, impartiality, and integrity of the board, and refrain from making any inappropriate or prejudicial comments regarding any matter being reviewed by the board or which may be reasonably expected to be reviewed by the board.

(j) The director of law shall investigate an allegation of misconduct by a board member or their staff and submit a written report of the investigative findings to the mayor and the metropolitan council. (Amdt. 1 to Ord. BL2023-1990 § 1, 2023; Ord. BL2023-1990 § 1, 2023)

2.106.040 Board staff.

(a) The board shall be served by an executive director who is selected by the mayor and approved by a majority of the members of the board. The executive director position shall be in the unclassified service.

(b) The executive director shall:

(1) Possess a reputation for fairness, integrity and responsibility and have demonstrated an active interest in public affairs and service;

(2) Be a registered voter of Davidson County;

(3) Not be a former employee of a law enforcement agency for the preceding twelve months;

(4) Possess prior investigative experience, such as would be possessed by an attorney or a local law enforcement officer;

(5) Respect an individual's, including a police officer's, right to privacy, and maintain confidentiality of records;

(6) Maintain the confidentiality of all law enforcement records and files that the executive director or board receives as a result of the board's performance of its official duties;

(7) Not participate in the review of a complaint in which the executive director has a personal, professional, or financial conflict of interest;

(8) Conduct the duties of the office in a manner that maintains public confidence in the fairness, impartiality, and integrity of the board, and refrain from making inappropriate or prejudicial comments regarding a matter being reviewed by the board or which may be reasonably expected to be reviewed by the board; and

(9) Comply with all rules applicable to other employees of the metropolitan government.

(c) No person shall be approved as an executive director until the person has:

(1) Supplied a fingerprint sample for the purpose of a state criminal history background check and investigation to be conducted by the Tennessee Bureau of Investigation, as well as a national criminal history background check to be conducted by the Federal Bureau of Investigation; and

(2) Submitted to a lawfully administered test designed to detect the presence of a controlled substance or a controlled substance analogue.

(d) The board shall prepare annually a budget for the coming fiscal year, and shall submit such budget to the mayor in accordance with Article 6 of the Metropolitan Charter. Subject to annual appropriation in the operating budget, the board may employ staff as may be necessary to carry out the purposes of the board to be managed by the executive director. The salaries and benefits of board staff shall be as fixed in the pay plan adopted pursuant to Article 12 of the Metropolitan Charter. (Amdt. 1 to Ord. BL2023-1990 § 1, 2023; Ord. BL2023-1990 § 1, 2023)

2.106.050 Duties of the executive director.

(a) The executive director shall accept written, sworn complaints from members of the public regarding misconduct of metropolitan police officers and shall forward these complaints to the head of the police department office of professional accountability within three business days of their receipt. Upon receipt of any such complaint, the police department office of professional accountability shall immediately undertake an investigation of the allegations pursuant to the standard operating procedures of the police department. The executive director may also accept unsworn or anonymous complaints, and if accepted, refer the complaints to the police department office of professional accountability for investigation.

(b) Upon notification by the head of the police department office of professional accountability that an investigation of an allegation of police misconduct is closed, whether such investigation was prompted by a complaint received by the executive director or otherwise, the executive director shall review the police department office of professional accountability file or the referral action form and determine whether the investigation is complete.

(1) If the executive director finds that the investigation is complete, then the executive director shall file a report with the board at its next regularly scheduled meeting that contains a copy of the police department office of professional accountability case, summary, or referral action form, and any documentation of disciplinary action pertaining to the case.

(2) If the executive director finds that the investigation is not complete, then the executive director shall notify the board, at its next regularly scheduled meeting, that, in the executive director's opinion, additional investigation or additional time may be required for the investigation to be complete.

(c) At each regularly scheduled board meeting, the executive director shall file a report with the board that details the resolution of unsworn or anonymous complaints that the executive director has been able to resolve without an investigation by the police department office of professional accountability.

(d) The executive director may request legal services and advice from the department of law. If the director of law determines that the provision of legal services and advice would constitute a conflict of interest, the director of law shall so advise the executive director. The executive director may then request the director of law to provide outside counsel for such legal services and advice.

(e) The executive director shall:

(1) Ensure the proper recording of the minutes of the board;

(2) Maintain proper records and files pertaining to board business;

(3) Receive and record all exhibits, petitions, documents, or other materials presented to the board in support of or in opposition to a question before the board;

(4) Comply with state law and local ordinances regarding notice of meetings;

(5) Provide complainants with information about the complaint process;

(6) Be a notary public;

(7) Compile statistical information regarding complaints of misconduct by police officers as reported to the executive director from a member of the public, reported to the police department office of professional accountability where the investigation was reviewed by the executive director, or which were initiated by the executive director; and

(8) Include the information compiled under subsection (e)(7) in an annual report to the chief of police, the mayor, and the metropolitan council of the board's activities. (Amdt. 1 to Ord. BL2023-1990 § 1, 2023; Ord. BL2023-1990 § 1, 2023)

2.106.060 Powers and duties of the board.

(a) The board shall review all reports of the executive director submitted in accordance with the provisions of Section 2.106.050(b).

(b) After a finding by the executive director that an investigation is not complete, the board may, by a majority vote of its members:

(1) Request the chief of police to conduct a further investigation of the incident, specifying that additional information is needed; or

(2) Direct the executive director to return the investigation to the police department office of professional accountability for additional investigation.

(c) The executive director shall report any additional investigative findings made to the board, and upon completion of its inquiry, the board shall report its written findings and conclusions to the chief of police and the mayor.

(d) The board shall have access to all public records it deems necessary to conduct its affairs in furtherance of its duties under this chapter, including department of metropolitan police records. Such records include:

(1) Complaints and supporting documents provided by complainants;

(2) Offense, incident, and arrest reports; and

(3) Incident-related documents such as schedules, dispatch notes, dispatch tapes and transcriptions, citations, photographs, and records of interviews with complainants, employees, and witnesses.

(e) The board shall not access nonpublic records, including employee medical records, or records that are otherwise exempt from disclosure under any state or federal law. Notwithstanding the foregoing, any document provided to the board that is confidential under state or federal law must be treated as confidential and must not be released to the public.

(f) Upon completion of the review of an internal affairs investigation, the board may, subject to its own specific findings and conclusions, make recommendations to the chief of police for the improvement of law enforcement policies and activities and to benefit the community.

(g) The board shall, at least once a year, compile a comprehensive report of its activities. The report shall contain statistics and summaries of citizen complaints, including a comparison of the board's findings and conclusions with those of the police department office of professional accountability, along with the actions taken by the chief of police. The board's annual report shall be submitted to the:

(1) Executive director for inclusion in the executive director's annual report to the chief of police;

(2) Mayor;

(3) Metropolitan council;

(4) Chairs of the civil justice and criminal justice committees of the house of representatives; and

(5) Chair of the judiciary committee of the senate.

(h) The board may request legal services and advice from the department of law. If the director of law determines that the provision of legal services and advice would constitute a conflict of interest, the director of law shall so advise the board. The board may then request the director of law to provide outside counsel to the board for such legal services and advice.

(i) If the executive director is prohibited from participating in the review of a complaint pursuant to Section 2.106.040(b)(7), the board may petition the mayor to appoint a temporary assistant to perform the duties of the executive director. (Amdt. 1 to Ord. BL2023-1990 § 1, 2023; Ord. BL2023-1990 § 1, 2023)

2.106.070 Procedure.

(a) The board shall adopt rules of procedure for the transaction of board business not inconsistent with this chapter.

(b) Four members of the board shall constitute a quorum. No meeting of the board shall commence or continue in the absence of a quorum. A majority vote of those forming a quorum is required for any action by the board except where otherwise specified in this chapter.

Regular meetings of the board shall be held no less than quarterly, on the first Wednesday of January, April, July and October or as the board may otherwise elect. A scheduled meeting may be rescheduled at the preceding regular meeting. The chair and three members of the board may call a special meeting of the board upon at least five days' notice.

(c) Board meetings and records shall be open to the public in accordance with the provisions of the Tennessee Open Meetings Act and Public Records Act. The board shall provide an opportunity for public comment about an investigation being reviewed by the board pursuant to rules established by the board.

(d) The chief of police, or their designee, may attend meetings of the board and provide information and advice to, or accept the recommendations of, the board, if any. (Ord. BL2023-1990 § 1, 2023)

2.106.080 Limitations.

(a) The board does not have the authority to issue subpoenas for documents or to compel witness testimony. This limitation does not prohibit the issuance of a subpoena, on behalf of the board, approved by resolution of the metropolitan council where:

(1) the subpoena issued by the metropolitan council, on behalf of the board, is issued pursuant to a majority vote of the metropolitan council,

(2) is not issued in the form of a blanket authorization, but must specify each document to be produced, and

(3) is not issued for documents that are confidential under state or federal law.

(b) The board and its staff shall not review an investigation:

(1) Concerning any incident occurring prior to January 1, 2023;

(2) Prior to the closure of an investigation by the police department office of professional accountability or of a criminal investigation;

(3) While the complainant, the officer(s) complained about, or a witness is actively engaged in pursuing a remedy provided by the rules and regulations of the civil service commission; or

(4) Where the complainant has initiated, threatened, or given notice of the intent to initiate litigation against the metropolitan government or any of its employees.

(c) The board shall not direct the chief of police to alter or impose disciplinary action against any employee of the department of metropolitan police.

(d) To the extent not preempted by state law, the board shall have all the powers and duties provided in Section 11.1301 of the Metropolitan Charter. (Amdt. 1 to Ord. BL2023-1990 § 1, 2023; Ord. BL2023-1990 § 1, 2023)

2.106.090 Severability.

If any provision or clause of this chapter or the application thereof to any person or circumstance is held to be unenforceable by a court of competent jurisdiction, such clause or provision and the remainder of this chapter shall remain effective and enforceable to the fullest extent allowed by law, and all clauses and provisions of this chapter are hereby declared to be severable. (Amdt. 1 to Ord. BL2023-1990 § 1, 2023; Ord. BL2023-1990 § 1, 2023)

Chapter 2.107

FARMERS' MARKET BOARD

Sections:

2.107.010 Rules and regulations.

2.107.010 Rules and regulations.

The farmers' market board is authorized to adopt rules and regulations to enable business entities, nonprofits, and other organizations to sponsor events and programs at the Nashville Farmers' Market. Such rules and regulations shall include, but not be limited to, the types of events, programs, and sites that may be sponsored; the size, number, and placement of sponsor signs; the use of logos; and the types of industries and products that are not eligible to become sponsors. The farmers' market board, or at the farmers' market's board's discretion, the executive director of the Nashville Farmers' Market, shall have the authority to enter into sponsorship agreements with a total net value not to exceed fifty thousand dollars per sponsorship. All sponsorship agreements with a total net value in excess of fifty thousand dollars per sponsorship must be approved by resolution adopted by the metropolitan council. (Ord. BL2024-334 § 1, 2024)

Division IV. Commissions

Chapter 2.108

METROPOLITAN ACTION COMMISSION

Sections:

2.108.010	**Created.**
2.108.020	**Membership—Appointment and term of chairman and members.**
2.108.030	**Vice-chairman and other officers.**
2.108.040	**Meeting.**
2.108.050	**Powers and duties.**

2.108.010 Created.

There is created the metropolitan action commission. (Prior code § 2-1-74)

2.108.020 Membership—Appointment and term of chairman and members.

A. The metropolitan action commission shall consist of eighteen members appointed by the mayor and confirmed by the metropolitan council. Six, or not less than one-third, of the members of the commission shall be elected public officials currently holding office, or their representatives, except that if the mayor finds that there are insufficient elected officials reasonably available or willing to serve, then the mayor may select appointive public officials to serve; specifically, the officials on the commission shall be as follows: the mayor, the metropolitan board of education, a member of the health, hospitals and social services committee of the metropolitan council elected by such committee, a member of the personnel-public information-human relations-housing committee of the metropolitan council elected by such committee, the director of metropolitan social services, and the director of the metropolitan development and housing agency. Six, or not less than one-third, of the commission shall be persons chosen in accordance with democratic selection procedures adequate to assure that they are representative of the poor in the area served. However, one of the representatives of the poor shall be president of the Head Start policy council of the metropolitan action commission, whose term shall be identical with the term of the president of the policy council. Six, or not less than one-third, of the members of the commission shall be officials or members of business, industry, labor, religious, welfare, education or major groups and interests in Metropolitan Nashville and Davidson County. The terms of the public officials on the commission, other than the metropolitan council representatives, and the term of the president of the Head Start policy council of the metropolitan action commission shall be the same as the elected or appointive term of office. The two members of council serving on the commission shall have a term of two years. The election of the member of the health, hospitals and social services committee and the personnel-public information-human relations-housing committee to serve on the commission shall take place upon the expiration of term of the chairpersons of the committees presently serving on the commission at the date of enactment of the amendatory ordinance providing that such members be elected. The other eleven members of the commission shall initially be appointed for staggered terms as follows: one-third of the representatives of the poor and of business and other interests shall have a term of one year; one-third of same shall have a term of two years; and one-third of same shall have a term of three years. Thereafter, all twelve representatives of such groups shall be appointed for a term of three years, and their terms will commence on the second day of February of the year of their appointment.

B. The mayor shall also appoint one of the members of the commission as chairman for a term of one year. (Amdt. 1 to Ord. BL2005-638, 2005; Ord. BL2005-638 § 1, 2005; Ord. 91-1559 § 1, 1991; prior code § 2-1-75)

2.108.030 Vice-chairman and other officers.

Immediately upon appointment and qualification, the metropolitan action commission shall elect one of its members as vice-chairman, who shall serve for a period of one year, or until his successor shall have been chosen for the ensuing term. The commission may choose such other officers as it deems necessary. (Prior code § 2-1-76)

2.108.040 Meeting.

The metropolitan action commission shall hold regular meetings at least quarterly for the conduct of its business, and may hold more frequent regular meetings as its bylaws may provide. It may hold special meetings as may be deemed necessary, the same to be called or held as provided in its bylaws. (Prior code § 2-1-77)

2.108.050 Powers and duties.

A. The powers, duties and responsibilities of the metropolitan action commission shall be to coordinate the existing facilities of the metropolitan government, private, state and federal educational, health and welfare facilities, to the end that all such facilities shall be marshalled in an effort to obtain full employment and

job opportunity for the residents of this community through education, reeducation, upgrading of health and physical environment, and such other means as may be proper.

B. In the performance of these powers, duties and responsibilities, the metropolitan action commission shall have the authority and, where appropriate to the context, shall be required to:

1. Within its budget appropriation and other funds at its disposal, employ personnel and enter into contracts for such services as it may require;

2. Enter into agreements and receive such grants or assistance, or both, as may be available from the federal or state governments for the purposes for which the commission is established, and also to receive gifts for such purposes.

C. Coordinate among government departments, agencies and officials as necessary to meet the objectives created by the State of Tennessee under the Workforce Innovation and Opportunity Act of 2014 (Federal Act).

1. To administer programs as described in the workforce development system pursuant to the Federal Act's rules and regulations promulgated to carry out the purposes of the Act; and applicable federal, state, and local laws, rules and regulations.

2. MAC may accept grants of funds made available to accomplish the purpose and intent of the Federal Act and, subject to a resolution of the metropolitan council appropriating said funds, may enter into operational agreements using such funds with the local work force investment board and any successor or additional agency as established and required by the Federal Act.

3. To monitor and evaluate program operations implemented under the Federal Act.

4. To contract with vendors for services contemplated by the Federal Act. (Ord. BL2020-295 § 4, 2020; prior code § 2-1-78)

Chapter 2.112

METROPOLITAN NASHVILLE ARTS COMMISSION

Sections:

2.112.010	**Established.**
2.112.020	**Membership and term of office.**
2.112.030	**Purpose of the commission.**
2.112.040	**Powers and duties.**
2.112.050	**Review, acceptance, and maintenance of donated artwork.**

2.112.010 Established.

There is created and established a commission to be legally known as the "Metropolitan Nashville Arts Commission," referred to in this chapter as "commission." (Prior code § 2-1-101.61)

2.112.020 Membership and term of office.

The commission shall be composed of eleven members to be appointed by the mayor and to serve without compensation. All members of the commission shall be confirmed by the metropolitan county council. The members shall serve staggered terms of four years. All vacancies of any commission member shall be filled for the balance of the unexpired term in the same manner as original appointments. (Amdt. 1 to Ord. BL2025-811 § 1, 2025; Ord. BL2025-811 § 1, 2025; Ord. BL2024-476 § 1, 2024; Ord. 93-576 § 1, 1993; prior code § 2-1-101.62)

2.112.030 Purpose of the commission.

The purpose of the commission shall be as follows:

A. To promote the study, participation in and appreciation of the visual, performing and literary arts;

B. To support and participate in the presentation of displays, exhibits, recitals, concerts, lectures and symposia;

C. To cooperate with and assist public and private educational institutions, the media, and other private and governmental entities involved in artistic and cultural promotion;

D. To promote equity in the arts community;

E. To provide information and recommendations to the metropolitan county council and the metropolitan county mayor with respect to the architectural design and aesthetics of public places and property. (Ord. BL2024-302 § 1, 2024; prior code § 2-1-101.63)

2.112.040 Powers and duties.

In order to carry out and facilitate the commission's general purposes, it shall have authority to:

A. Elect a chairman and such other officers as it may deem necessary to carry out the functions and duties of the commission;

B. Promulgate and maintain its own regulations and bylaws;

C. Conduct its affairs, to select advisory committees or panels of experts as necessary to assist in the discharge of its duties;

D. Receive and expend any money allocated to it by the metropolitan government or donated to it for the purposes of the commission as expressed herein;

E. Accept and receive gifts donated to the commission for artistic and cultural purposes;

F. Recognize individuals, institutions and organizations who exemplify excellence in cultural and artistic endeavors by bestowing upon such individuals, institutions and organizations such awards and commendations as the commission from time to time deems appropriate;

G. Accept funds from other arts organizations, private and government entities, for disbursement to deserving nonprofit civic and nonprofit charitable organizations. The acceptance of such funds shall be approved by resolution of the metropolitan council;

H. Award funds appropriated to it by the metropolitan council to deserving nonprofit civic and nonprofit charitable organizations. Criteria for the awarding of such funds shall be established by the Metropolitan Nashville Arts Commission and approved by resolution of the metropolitan council each year before funds are awarded. The annual resolution shall indicate whether there is a change in the award criteria from the previous year.

1. A "nonprofit charitable organization" is defined as one in which no part of the net earnings benefit any private shareholder or individual and which provides year-round services benefiting the general welfare of the residents of the municipality.

2. A "nonprofit civic organization" is defined as a civic organization exempt from taxation pursuant to Section 501(c) of the IRS Code. A nonprofit civic organization must operate primarily for the purpose of bringing about civic betterment and social improvements through efforts to maintain and increase employment opportunities in the municipality.

3. For purposes of this code section, both nonprofit charitable organizations and nonprofit civic organizations shall be involved in the study, participation in and appreciation of the visual, performing and literary arts for the Metropolitan Nashville and Davidson County

area. (Amdt. 1 to Ord. BL2024-476 § 2, 2024; Ord. BL2024-476 § 2, 2024; Ord. 94-993 § 1, 1994; prior code § 2-1-101.64)

2.112.050 Review, acceptance, and maintenance of donated artwork.

A. For purposes of this section, "donated artwork" means artworks, property for placement of artwork, and funds for the acquisition of artwork that may be proposed for donation to the metropolitan government outside of the Percent for Art Program established pursuant to Chapter 5.10 of the Metropolitan Code, provided that artwork accepted by the board of parks and recreation for exhibition at the Parthenon museum shall not be subject to the provisions of this section.

B. Prior to acceptance by the metropolitan government, all donated artwork shall be submitted to the metropolitan arts commission for review and recommendation in accordance with the arts commission's adopted policy pertaining to donated artwork. The arts commission shall submit a recommendation to the metropolitan council if council approval is required by applicable law for acceptance of the artwork, or to the metropolitan government department or agency that has the authority to accept the artwork if no council approval is required.

C. All accepted donated artwork shall be owned by the metropolitan government.

D. Unless the metropolitan council has appropriated funding specifically for the installation and maintenance costs for the donated artwork, a donor's proposal shall include funding adequate to cover all costs for the design, fabrication, insurance, transportation, storage, installation, and maintenance of the proposed artwork for a period of ten years from the date of acceptance, plus contingency funds for reasonable unforeseen circumstances.

E. Final acceptance recommendations of donated artwork shall be made by the arts commission and acknowledged through a written statement to the donor or donor's agent.

F. Acceptance agreements. An agreement pertaining to final acceptance of all donated artwork appraised at more than five thousand dollars, or if anticipated maintenance of the artwork will exceed five thousand dollars over a ten year period, must be approved by resolution of the metropolitan council prior to the metropolitan government taking possession and ownership of the donated artwork. Such agreement shall be approved by the department of law as to form and legality, and shall include, at a minimum, the following:

1. A description of the terms and conditions under which the artwork is to be accepted, including responsibilities for installation, fabrication (if applicable), site preparation, insurance, ongoing maintenance, conservation, and informational signage.

2. A statement that the metropolitan arts commission retains full rights of reproduction, filming/photography, removal, relocation, and deaccessioning of the artwork donation.

3. A statement that the artwork will be acquired without legal restrictions as to future use and disposition, except with respect to state or federal laws regarding the preservation, copyright, and/or resale of works of art.

G. Deaccessioning or alterations of any donated artwork shall be addressed in the same manner as artwork commissioned through the Percent for Art Program established pursuant to Chapter 5.10 of the Metropolitan Code and the process provided in the Public Art Guidelines approved by the arts commission. (Ord. BL2015-1277 § 1, 2015)

Chapter 2.114

METROPOLITAN ANIMAL CARE AND CONTROL COMMISSION

Sections:

2.114.010	**Established.**
2.114.020	**Composition, membership and term of office.**
2.114.030	**Duties.**

2.114.010 Established.

There is hereby established the "Metropolitan Animal Care and Control Commission," referred to in this chapter as "commission." (Ord. BL2025-1061 § 1, 2025)

2.114.020 Composition, membership and term of office.

A. The commission shall be composed of seven voting members. Two members shall be representatives of local nonprofit organizations dedicated to animal welfare appointed by the mayor. One member shall be a veterinarian, preferably with experience in an animal shelter, appointed by the mayor. One member shall be a representative of a local nonprofit organization that operates an animal shelter, appointed by the mayor. One member shall be a representative of a local nonprofit organization dedicated to animal welfare elected by the metropolitan council. Two members at large shall be elected by the metropolitan council. Members appointed by the mayor shall be confirmed by the metropolitan council.

B. In addition to these voting members, the director of the department of health or a designee shall serve as a non-voting member. One member of the metropolitan council shall be selected by that body from its membership to serve as a non-voting member for a term of two years. In no event shall the term of the council member extend beyond the council term in which they were elected.

C. Members of the commission shall be residents of Davidson County and serve without compensation.

D. Commission members shall serve staggered four-year terms. Of the initial members appointed, the member appointed by the mayor from a local nonprofit organization that operates an animal shelter shall be appointed for one year. The members appointed by the mayor from local nonprofit organizations dedicated to animal welfare shall be appointed for two years. The members at-large elected by the metropolitan council shall serve for three years. The veterinarian and the member elected by the metropolitan council from a local nonprofit organization dedicated to animal welfare shall serve for four years. (Ord. BL2025-1061 § 1, 2025)

2.114.030 Duties.

A. The commission shall have authority to:

1. Promote the health, safety, and welfare for animals and pets in the jurisdiction of the metropolitan government.

2. At the request of, and in consultation with, the director of the animal care and control services division of the department of health (Metropolitan Animal Care and Control), provide insight relative to its operations and programing while advocating for its mission.

3. Support Metropolitan Animal Care and Control's educational animal welfare initiatives and programming.

4. Promote community outreach, including fostering relationships with nonprofit partners.

5. At the request of, and in consultation with, the director of Metropolitan Animal Care and Control, promulgate and maintain rules and bylaws for the commission.

6. Prepare and submit an annual report to the mayor and metropolitan council no later than June 30 of each year summarizing activities, achievements, and areas of consideration for Metropolitan Animal Care and Control.

B. The commission shall meet no less than once per quarter. (Amdt. 1 to Ord. BL2025-1061 § 1, 2025; Ord. BL2025-1061 § 1, 2025)

Chapter 2.116

AUDITORIUM COMMISSION

Sections:

2.116.010	**Created.**
2.116.020	**Membership—Appointment, compensation, term and vacancy filling.**
2.116.030	**Powers and duties.**

2.116.010 Created.

There is created a metropolitan auditorium commission. (Prior code § 2-1-57)

2.116.020 Membership—Appointment, compensation, term and vacancy filling.

The metropolitan auditorium commission shall consist of seven members. Four members are to be appointed by the mayor and confirmed by a majority of the whole metropolitan council. Three members are to be elected by a majority vote of the whole membership of the metropolitan council. The members of the metropolitan auditorium commission shall serve without compensation for staggered terms of three years each. Any vacancy due to any cause shall be filled by the same appointing authority as the vacant appointment, and shall be for the unexpired portion of the term. (Ord. BL2022-1528 § 3, 2023; prior code § 2-1-58)

2.116.030 Powers and duties.

It shall be the duty of the metropolitan auditorium commission to:

A. Exercise all the powers and perform all the duties heretofore imposed on the municipal auditorium commission, as established by Chapter 537 of the Private Acts of Tennessee for 1949, as amended by Chapter 209 of the Private Acts of Tennessee for 1957;

B. Perform such other duties as may be imposed upon the commission by ordinance. (Prior code § 2-1-59)

Chapter 2.120

CHARTER REVISION COMMISSION

Sections:

2.120.010	**Establishment—Council intent—Statutory authority.**
2.120.020	**Created—Purpose.**
2.120.030	**Appointment, compensation and term of members—Vacancy filling.**
2.120.040	**Qualifications for members.**
2.120.050	**Officers.**
2.120.060	**Meetings.**
2.120.070	**Bylaws, rules and regulations.**
2.120.080	**Quorum for voting.**
2.120.090	**Powers and duties.**
2.120.100	**Personnel.**

2.120.010 Establishment—Council intent—Statutory authority.

It is the intent of the metropolitan council to exercise to the full extent of the Charter power granted by Section 19.03 of the Metropolitan Charter to establish a charter revision commission to hold hearings and to make recommendations to the metropolitan council with respect to amendments to the Charter consistent with Amendment No. 8 to Article XI, Section 9 of the Constitution of Tennessee and Tennessee Code Annotated, Section 7-1-101, et seq., as they now exist or may hereafter be amended, so that in the interest of modern, efficient and economical government, the metropolitan government may be operated as one governmental entity in the interest of aiding in the solution of the public problems of a metropolitan area. (Prior code § 2-1-88)

2.120.020 Created—Purpose.

There is established a charter revision commission to hold hearings and to make recommendations to the metropolitan council with respect to amendments to the Metropolitan Charter. (Prior code § 2-1-79)

2.120.030 Appointment, compensation and term of members—Vacancy filling.

The charter revision commission shall consist of seven members, to be appointed by the mayor and confirmed by a majority of the whole membership of the metropolitan council. The members of the commission shall hold no other public office or public position of employment, and each shall serve for a term of four years without compensation. Any vacancy occurring during the term of a members shall be filled for the unexpired term in the manner prescribed for the original appointment. (Prior code § 2-1-80)

2.120.040 Qualifications for members.

Every member of the charter revision commission shall have been a resident of the general services district or have had his principal place of business or employment therein for not less than one year prior to his appointment, and shall continue to be so eligible so long as he shall serve. (Prior code § 2-1-81)

2.120.050 Officers.

The charter revision commission shall elect one of its members as chairman and another as vice-chairman, who shall serve for a period of one year or until their respective successors shall have been chosen. It may elect as its secretary one of its own members, or it may appoint as secretary one who is not a member. (Prior code § 2-1-85)

2.120.060 Meetings.

The charter revision commission shall hold regular meetings at least quarterly for the conduct of its business, and may hold more frequent regular meetings as its bylaws may provide. It may hold special meetings as may be deemed necessary, the same to be called or held as provided in its bylaws. (Prior code § 2-1-83)

2.120.070 Bylaws, rules and regulations.

The charter revision commission may make such bylaws, rules and regulations, not inconsistent with law, as it deems appropriate for the conduct of its business, copies of which shall be filed with the metropolitan clerk and with the secretary of the commission. (Prior code § 2-1-86)

2.120.080 Quorum for voting.

A majority of the members of the charter revision commission shall constitute a quorum for the purpose of meetings and transacting business. (Prior code § 2-1-84)

2.120.090 Powers and duties.

A. The functions, powers and duties of the charter revision commission shall be:

1. To receive and study recommendations relating to proposed amendments to the Metropolitan Charter;

2. To hold public hearings with respect to amendments to the Metropolitan Charter;

3. To make recommendations to the metropolitan council concerning the amendments to the Metropolitan Charter and to report periodically to the metropolitan council on its activities;

B. The charter revision commission is an agency of the metropolitan government, authorized to hold hearings, and shall have the power granted by Section 18.10 of the Metropolitan Charter to compel the attendance of witnesses and the production of books, papers and records pertinent to the hearing, and to administer oaths to witnesses. If any persons fails or refuses to obey a reasonable order for attendance or reasonable order for the production of books and papers, the commission is authorized to apply to the chancery court for an order requiring that the order of the commission be obeyed. (Prior code § 2-1-82)

2.120.100 Personnel.

The metropolitan clerk or designee shall assist the charter revision commission with the performance of administrative functions. The metropolitan clerk or designee shall also serve as the custodian of the minutes and records of the commission. (Ord. BL2016-176 § 1, 2016; prior code § 2-1-87)

Chapter 2.124

RESERVED*

** **Editorial Note:** Ord. No. BL2010-690, § 1, approved June 18, 2010, effective July 1, 2010, repealed chapter 2.124, which pertained to metropolitan convention center commission and derived from Amdt. 1 to Ord. 92-349, 8-4-92; Ord. 92-349 § 1, 1992; Ord. 89-1015 § 1, 1990; prior code §§ 2-1-101.72—2-1-101.76.

Chapter 2.128

HISTORICAL COMMISSION

Sections:

2.128.010	**Established.**
2.128.020	**Purpose of the commission.**
2.128.030	**Appointment and term of office of members.**
2.128.040	**Officers and bylaws—Authority to purchase property and other powers.**
2.128.050	**Historical commission executive director and staff.**
2.128.060	**Powers and duties.**
2.128.070	**County historian, qualifications and duties.**

2.128.010 Established.

There is established a commission dedicated to the preservation, promulgation and promotion of an accurate historical knowledge of Davidson County, to be legally known as the historical commission of Metropolitan Nashville-Davidson County. (Prior code § 2-1-97)

2.128.020 Purpose of the commission.

The purpose of the historical commission established by this chapter is to preserve, promulgate and promote an accurate history of Davidson County. (Prior code § 2-1-98)

2.128.030 Appointment and term of office of members.

The historical commission shall be composed of fifteen members who shall serve without compensation. Ten members are to be appointed by the mayor and confirmed by a majority vote of the whole membership of the metropolitan council. Five members are to be elected by a majority vote of the whole membership of the metropolitan council. Each member shall serve for a term of four years from the appointment dates. All vacancies of any commission member shall be filled for the balance of the unexpired term by the same appointing authority as the vacant appointments. (Ord. BL2022-1528 § 4, 2023; Ord. 93-564 § 1, 1993; prior code § 2-1-99)

2.128.040 Officers and bylaws—Authority to purchase property and other powers.

The historical commission is authorized:

A. To establish its own offices and to elect its own officers therefor;

B. To promulgate and maintain its own regulations and bylaws;

C. To purchase and maintain any property, real or personal, in conjunction with the commission's general purpose stated in this chapter; and

D. To make any recommendations to the mayor in regard to person suitable for appointment to the commission. (Prior code § 2-1-100)

2.128.050 Historical commission executive director and staff.

A. There shall be created the position of executive director for the historical commission of the Metropolitan Government of Nashville and Davidson County. The executive director shall report to and serve at the pleasure of the historical commission and shall be paid such compensation as shall be fixed by the historical commission within its budgeted appropriations. The executive director for the historical commission:

1. Shall possess a degree in history, historic preservation, architectural history, or related field (e.g., planning, architecture), preferably with postgraduate training;

2. Shall have at least five years of experience working in the historic preservation or related field;

3. Shall be familiar with the history of Nashville-Davidson County and Tennessee;

4. Shall have demonstrated ability to discharge the duties and functions of the executive director of the historical commission.

B. The executive director of the historical commission shall hire staff as needed to carry out the necessary tasks to assist the commission in the performance of its functions. (Amdt. C to Ord. BL2025-742 § 1, 2025; Ord. BL2025-742 § 1, 2025; Ord. BL2008-330 §§ 1, 2, 2008; Ord. 90-1339 § 1 (2-11), 1990; prior code § 2-1-100.1)

2.128.060 Powers and duties.

In order to carry out and facilitate the historical commission's general purpose, it shall be authorized to do the following things:

A. To attempt to locate, collect and preserve historical material that it may consider relevant to the history of Davidson County;

B. To conduct its affairs, hold legal title to any personalty or realty, and make appropriate arrangements for the purchase, preservation, promotion and use of any material, both real and personal, and to do such as an agency of the metropolitan government, as provided by the Metropolitan Charter;

C. To receive and expend any money allocated to it by the metropolitan government, or donated to it to be used for the purposes herein stated;

D. To make application to the internal revenue service, asking that its character be classified charitable;

E. To ascertain and certify any evaluation of gifts, bequests and devices where requested and whenever possible;

F. To cooperate with appropriate officials and agencies in preserving records, archives and historic buildings, and in the erection of monuments, markers, etc.;

G. To sponsor the preparation and publication of histories, guidebooks and similar material, and to take any other actions which it considers necessary and proper in the furtherance of the board aims as set forth in this chapter;

H. To endeavor to arouse interest in the history of the area by operating with schools, clubs and other interested organizations;

I. To sponsor lectures, tours, exhibits and displays, and it may utilize any and all media of communication, such as newspapers, radio and television, in the accomplishments of its purposes;

J. To lend its assistance and cooperation to the Tennessee Historical Society, the Tennessee Historical Commission, the Official Historian of Tennessee, the historian of Davidson County, and other duly constituted historical bodies and individuals in the pursuit of such common goals as may fall within the broad purpose of this commission.

K. To serve as liaison to the Tennessee Department of Environment and Conservation, Division of Archeology, to facilitate the preservation of sites and artifacts found on public property as required by Tennessee Code Annotated Section 11-6-107. (Amdt. 1 to Ord. BL2011-834 § 1, 2011; Ord. BL2011-834 § 1, 2011; prior code § 2-1-101)

2.128.070 County historian, qualifications and duties.

A. There shall be created the position of county historian for Davidson County. The historian shall serve for a five-year term, subject to reappointment for one additional term. The position shall be appointed by the mayor, the appointee selected from a list of candidates to be provided by the historical commission, and the mayor's appointee shall be subject to confirmation by the metropolitan council. The county historian shall have a master's degree in the history of the United States, public history, or closely related field involving the study of the history of the United States. The position shall be uncompensated, but the county historian may be compensated for incidental expenses related to the position's duties.

B. The county historian's duties shall include, but not be limited to, the following:

1. To serve all functions referred to in Tennessee Code Annotated § 5-18-101 in order to help collect and preserve local and state history;

2. To serve on the historical commission as an ex-officio, non-voting member and work with the commission and its staff, as well as with all other interested entities within the Metropolitan Government of Nashville and Davidson County, to document and share with the public the county's history; and

3. To serve on the Davidson County Public Records Commission as an ex-officio, non-voting member.

C. Notwithstanding subsection (A), the current county historian, previously appointed pursuant to Tennessee Code Annotated section 5-18-101, shall continue to serve until retirement or through June 30, 2026. (Ord. BL2023-1991 § 1, 2023)

Chapter 2.130

HISTORIC ZONING COMMISSION STAFF

Sections:

2.130.010	**Historic zoning administrator.**
2.130.020	**Historic zoning commission staff.**

2.130.010 Historic zoning administrator.

There shall be created within the metropolitan planning department the position of historic zoning administrator to the metropolitan historic zoning commission. The historic zoning administrator shall report to and serve at the pleasure of the executive director of the planning department and shall be paid such compensation as shall be within the dept of planning's budgeted appropriations. The historic zoning administrator:

1. Shall possess a degree in history, historic preservation, architectural history, or related field (e.g., planning, architecture), preferably with postgraduate training focused on planning and land use;

2. Shall have at least five years of experience working in historic zoning or a related field; and

3. Shall be familiar with the history and zoning laws of Nashville-Davidson County and Tennessee. (Ord. BL2025-742 § 2, 2025)

2.130.020 Historic zoning commission staff.

A. All staff of the historic zoning commission shall be employees of the department of planning and report to the executive director of the department of planning. The existing staff of the historic zoning commission as of July 1, 2025, shall become members of the department of planning and shall retain their civil service status, ensuring employment protections and benefits consistent with other metropolitan civil service employees. Future employees of the department of planning assigned to perform duties related to historic zoning or support of the historic zoning commission shall have the same employment status as do other employees of the department of planning as of the effective date of this ordinance.

B. All future employees of the department of planning assigned to perform duties related to historic zoning or support of the historic zoning commission should have experience in historic preservation. (Amdt. A to Ord. BL2025-742 § 2, 2025; Ord. BL2025-742 § 2, 2025)

Chapter 2.132

METROPOLITAN HUMAN RELATIONS COMMISSION

Sections:

2.132.010	**Established.**
2.132.020	**Mission and objectives.**
2.132.030	**Composition—Qualifications, appointment, term and filling vacancies.**
2.132.040	**Officers and committees—Employment of staff.**
2.132.050	**Reserved.**
2.132.060	**Scope of responsibilities.**
2.132.070	**Powers and duties.**
2.132.080	**Annual budget—Facilities.**

2.132.010 Established.

There is established a metropolitan human relations commission. (Ord. 94-1129 § 1 (part), 1994)

2.132.020 Mission and objectives.

A. The mission of the human relations commission is to protect and promote the personal dignity of all people by protecting and promoting their safety, health, security, peace, and general welfare.

B. The commission will endeavor to carry out this mission both proactively and reactively by:

1. Investigating complaints within the general services district regarding perceived discrimination;

2. Reviewing allegations of discriminatory misconduct by metropolitan government employees, including but not limited to employees of the police department, fire department, health department, department of codes administration, public works, metropolitan beer permit board, metropolitan development and housing agency and department of water and sewerage services, and fostering better relations between employees of metropolitan government and the people they seek to serve;

3. Lessening and eliminating prejudice and discrimination through educational and awareness-enhancing programs designed to promote tolerance, respect, and the value of diversity;

4. Proposing legislation addressing human relations issues in the general services district and enhancing the enforcement of statutes and ordinances that already exist;

5. Fostering mutual understanding, tolerance, and respect among all economic, social, religious, ethnic, and other community groups by working with existing educational, religious, governmental, social and community agencies. (Ord. 94-1129 § 1 (part), 1994)

2.132.030 Composition—Qualifications, appointment, term and filling vacancies.

The human relations commission shall consist of fifteen members, who shall be broadly representative of the population of the general services district. Based on recommendations from any and all interested parties, including the metropolitan council, as well as ethnic, racial, religious, neighborhood, civic, community, social, fraternal, educational, commercial and advocacy organizations, the mayor shall appoint nine members of the human relations commission, subject to confirmation by a majority vote of the whole membership of the council. The remaining six members shall be elected by a majority vote of the whole membership of the council. Commission members shall serve three-years terms. A commission member is not eligible to be reappointed to the commission if such member has served more than one-half of a three-year term and a consecutive complete three-year term. Every member shall have been a resident of the general services district for at least one year prior to appointment and shall continue to be a resident of the general services district so long as he/she shall serve as a member of the commission. In the event a vacancy is created on the commission by the death, incapacity, or resignation of a member, or by the failure of a member to continue to reside in the general services district, a successor for the unexpired term shall be appointed by the same appointing authority as the vacant appointments. (Ord. BL2025-811 § 11, 2025; Ord. BL2022-1528 § 5, 2023; Ord. BL2016-99 § 1, 2016; Ord. 94-1129 § 1 (part), 1994)

2.132.040 Officers and committees—Employment of staff.

A. The human relations commission shall elect its own chair and vice-chair by majority vote. The chair and vice-chair shall be voting members of the commission. Officers shall serve one-year terms. There shall be a three term limit for officers. The commission may create and appoint task forces and committees it deems appropriate to carry out its functions. When appropriate for purposes of investigating and adjudicating complaints, cases will be assigned to panels consisting of three commission members. The commission chair and vice-chair will appoint commissioners to panels and provide administrative oversight of panels; they will not themselves serve on the panels. Each panel shall choose its own chair on a case-by-case basis.

B. The work of the commission shall be managed by an executive director, who shall be appointed by and serve at the pleasure of the commission. The commission shall employ such other persons as may be necessary to carry out the educational, administrative and investigative work of the commission and as may be within the limits of its budget appropriation.

C. The responsibilities of the commission staff, under the direction of the executive director, include managing commission records and accounts, developing public education programs, providing training for commission members, managing citizen complaints, seeking additional private-sector funding for the commission, facilitating commission scheduling and communication, and any other tasks needed to help the commission perform its functions. (Ord. 94-1129 § 1 (part), 1994)

2.132.050 Reserved.

Editor's note—Ord. BL2025-811 § 13, passed May 20, 2025, repealed § 2.132.050, which pertained to quorum and derived from Ord. 94-1129 § 1 (part), 1994.

2.132.060 Scope of responsibilities.

It is the responsibility of the commission to resolve complaints and carry out educational programs related to discrimination in the following areas:

A. Employment, including recruiting, hiring, firing, promotion, referral, and compensation;

B. Housing, including advertising, sales, renting, negotiating for sale or rent, financing, or insuring;

C. Financial services and commercial transactions, including banking, lending, collection, advising, investment management, or brokerage services;

D. The provision of public accommodations;

E. The provision of city activities and services, including but not limited to services provided the police department, fire department, health department, department of codes administration, public works, metropolitan beer permit board, metropolitan development and housing agency and department of water and sewerage services;

F. Educational programs and opportunities. (Ord. 94-1129 § 1 (part), 1994)

2.132.070 Powers and duties.

A. In the area of human rights, the commission will have the power and duty:

1. To investigate alleged discriminatory misconduct by employees of the metropolitan government, including but not limited to employees of the police department, fire department, health department, department of codes administration, public works, metropolitan beer permit board, metropolitan development and housing agency and department of water and sewerage services;

2. To investigate complaints regarding discriminatory practices by contractors working under agreements with metropolitan government;

3. To seek information from persons, agencies, and businesses and hold hearings regarding complaints related to civil and human rights in the general services district. At the commission's discretion, testimony may be taken under oath;

4. To investigate bias crimes, hate group activity, and other discriminatory practices;

5. To investigate, document, and comment upon systematic patterns and practices of misconduct and make recommendations to the mayor or appropriate supervisor;

6. To act as a conciliator in controversies and disputes involving human relations.

B. In the area of human relations, the commission will have the power and duty:

1. To develop and implement educational programs dedicated to the enhancement of human relations;

2. To gather data regarding human relations and discrimination within the city;

3. To hold hearings and convene public forums regarding issues related to civil and human rights in the general services district;

4. To advise and confer with the mayor and other members of metropolitan government regarding issues under its purview;

5. To recommend, draft, propose, and support legislative action to safeguard people within the general services district from discrimination;

6. To advise and consult with state and federal agencies regarding laws and policies addressing discrimination and other human relations issues;

7. To cooperate with educational institutions, local and national civil rights organizations, and community groups to study discrimination and foster better human relations.

C. In hearing complaints alleging misconduct by employees of metropolitan government, the commission shall have the power and duty to propose changes in policies and procedures of metropolitan government as they relate to the functions of the commission.

D. In hearing complaints alleging misconduct other than by employees of metropolitan government, the commission shall have the power and duty:

1. To request that the respondent cease and desist from the unlawful discriminatory practice;

2. To recommend that a respondent take such affirmative action as the commission deems appropriate;

3. When the respondent is a municipal government contractor, to recommend to the purchasing agency the conditions under which a contract or franchise should be continued in force, suspended, or terminated.

E. With respect to the administration of commission affairs, the commission shall have the power and duty:

1. To adopt, promulgate, amend, and rescind rules and regulations to effectuate the policies and provisions of this chapter;

2. To publish monthly reports on dispositions of human rights complaints;

3. To publish quarterly reports that provide full statistical and descriptive information on the status and outcomes of complaints and cases reviewed by the commission, as well as on educational activities undertaken by the commission;

4. To prepare an annual report on the state of human relations in the city. (Ord. 94-1129 § 1 (part), 1994)

2.132.080 Annual budget—Facilities.

A. The human relations commission shall prepare annually a budget for the coming fiscal year, and shall submit such budget to the mayor in accordance with the Metropolitan Charter. Office space and facilities for the human relations commission shall be provided by the metropolitan government.

B. The human relations commission shall not have the power to expend any public funds for the employment of personnel or any other purpose until such time as an appropriation of funds for the commission has been adopted by the metropolitan council. (Ord. 94-1129 § 1 (part), 1994)

Chapter 2.136

PLANNING COMMISSION

Sections:

2.136.010	**Commission authorized to adopt certain subdivision plat processing fees.**
2.136.020	**Fees charged for computer generated map reproduction.**
2.136.030	**Affordable housing report.**

2.136.010 Commission authorized to adopt certain subdivision plat processing fees.

A. The metropolitan planning commission is authorized to adopt, as a part of its subdivision regulations, a schedule of fees to be charged for the processing of subdivision plats, including but not limited to preliminary, final, zone lot partitions, planned unit developments, condominiums, and/or bonds related thereto.

B. Any regulations adopted pursuant to this section shall be done in accordance with Tennessee Code Annotated Section 13-4-303, and shall be filed with the metropolitan clerk upon final adoption by the metropolitan planning commission.

C. Upon adoption as set forth in subsection A of this section, such regulations shall have the same force and effect as other laws of the metropolitan government, and no plat or bond shall be recorded until the fees prescribed therein have been paid to the metropolitan government. (Prior code § 2-1-3.6)

2.136.020 Fees charged for computer generated map reproduction.

A. The metropolitan government acting through the metropolitan planning commission is authorized by Tennessee Code Annotated 10-7-409 and 10-7-506 to charge fees for the reproduction of any computer-generated map. The fee is based on the actual cost for the staff to produce the map except when the map is produced for commercial purposes for persons other than individuals requesting reproductions for themselves only. Maps produced for commercial purposes will be charged an additional fee. The fee schedule is on file at the office of the metropolitan clerk.

B. In lieu of the fees authorized by Section 4 of the ordinance codified in this section, and at the option of the person requesting digital map data having a commercial value, the metropolitan planning commission is authorized to issue a nonexclusive software license for digital mapping data for a term not to exceed three years which license will allow a user of the date to create additional value-added products for a one-time subscription fee of eight thousand one hundred dollars, and including an optional annual update fee of six hundred sixty dollars annually. (Ord. 97-797, 1997)

2.136.030 Affordable housing report.

A. The metropolitan planning department, through its two designated housing positions, shall publish and provide the members of the metropolitan council affordable housing committee not later than July 1 of each year a report providing the following information:

1. A current baseline of Davidson County's housing needs for families with incomes at or below sixty percent of the area median income as defined by the U.S. Department of Housing and Urban Development.

2. The number of new affordable housing units that are currently authorized and/or funded for construction.

3. The number of units that are being explicitly preserved through public or private intervention to prevent demolition of existing affordable housing.

4. Any other information or metric deemed necessary by the planning department to provide a clear assessment of the metropolitan government's progress toward reducing the deficit in affordable housing.

B. Data for this report may be based upon the metropolitan development and housing agency's most recent Consolidated Plan for Metropolitan Nashville and Davidson County, and augmented with data provided by the Barnes Fund Commission, the metro planning department, and other agencies.

C. This report may be updated quarterly on the planning department's website to reflect the demolition of existing affordable housing, the preservation of exiting affordable housing, and construction of new affordable housing in the previous quarter. Production data may consist of units that have been authorized, funded, and occupied in separate categories so that the commitment of future units can be included in the updates provided. (Amdt. 1 to Ord. BL2021-792 § 1, 2021; Ord. BL2021-792 § 1, 2021)

Chapter 2.140

PUBLIC RECORDS COMMISSION

Sections:

2.140.010	**Commission created.**
2.140.020	**Public records defined.**
2.140.030	**Membership—Qualifications and terms of office—Vacancy filling.**
2.140.040	**Officers—Meetings—Quorum.**
2.140.050	**Rules and regulations.**
2.140.060	**Staff.**
2.140.070	**Retention, possession, and destruction of records transferred to metro archives.**

2.140.010 Commission created.

There is created the public records commission for the purpose of providing the orderly disposition of public records created by all departments and agencies, including boards and commissions, of the Metropolitan Government of Nashville/Davidson County. (Ord. 97-845 § 1 (part), 1997)

2.140.020 Public records defined.

"Public records" shall be construed to mean:

A. All documents, papers, records, books, and books of account in all offices of the metropolitan government and county elected officials, including, but not limited to, the county clerk, the county register, the county trustee, the sheriff, the assessor of property;

B. The pleadings, documents, and other papers filed with the clerks of all courts including the courts of record, general sessions courts;

C. All documents created by any office or department of the old Davidson County or former City of Nashville, or of any office, department or agency of the metropolitan government. (Ord. 97-845 § 1 (part), 1997)

2.140.030 Membership—Qualifications and terms of office—Vacancy filling.

A. The Davidson County public records commission shall consist of eight members:

The mayor shall appoint three members and the metro council shall confirm each appointee. Of the three appointees, one shall be a member of the metro council, one shall be a judge of one of the courts of record, and one shall be a genealogist.

B. The county clerk or designee of the county clerk, county register or designee of the county register, the director of ITS or designee of the director of ITS, the county historian, and the archivist shall be ex officio members of the commission.

C. Each elected member of the commission shall hold office during the term for which the member was elected to office; any non-elected member of the commission shall serve for the term of the appointing official.

D. If a vacancy occurs in one of the appointed positions, the mayor shall appoint a person in the same manner as the original appointment. (Ord. BL2018-1292 § 1, 2018; Ord. BL2014-727 § 1, 2014; Ord. BL2014-660 §§ 1, 2, 2014; Ord. 97-845 § 1 (part), 1997)

2.140.040 Officers—Meetings—Quorum.

The public records commission shall elect a chairman and a secretary, and shall preserve the minutes of all its proceedings and transactions. A majority of the full membership of the commission shall constitute a quorum for the purpose of meeting and transacting business. (Ord. 97-845 § 1 (part), 1997)

2.140.050 Rules and regulations.

The public records commission shall establish reasonable rules and regulations to accomplish the primary task of providing for the orderly disposition of records as well as establishing rules and regulations to expand upon and interpret the public records policy of the metropolitan government. Such rules shall provide, but not be limited to:

A. Standards and procedures related to the creation, filing, storage, disposal, preservation, and duplication of records;

B. The process for public records requests, responses to public records requests; and fees and charges for records requests including procedures for billing and payment.

C. Appointment of Records Officers and Records Custodians. The head of each department shall designate a records officer, who shall be an employee at the administrative level, and inform the commission chairman in writing of such designation. The head of each department shall likewise designate a departmental records custodian, who shall be an employee at the administrative level, and inform the metropolitan clerk in writing of such designation. The records officer and records custodian may be the same person. The records officer and departmental records custodian shall be the primary facilitator(s) between the department and the staff of the records commission. The departmental records custodian

shall be responsible for ensuring that departmental public records requests are fulfilled in accordance with Tenn. Code Ann. Section 10-7-503(a)(2)(b);

D. The rules shall be applicable to all metro government departments. (Ord. BL2017-708 § 2, 2017; Ord. 97-845 § 1 (part), 1997)

2.140.060 Staff.

The metropolitan clerk or a designee thereof shall perform secretarial duties for the public records commission. (Amdt. 1 to Ord. BL2018-1292 § 2, 2018; Ord. BL2018-1292 § 2, 2018; Ord. 97-845 § 1 (part), 1997)

2.140.070 Retention, possession, and destruction of records transferred to metro archives.

A. Upon the transfer of possession of any record to the archives division of the Nashville Public Library, such records shall become the permanent property of and permanently retained by the archives division of the Nashville Public Library. The archivist, under the direction of the library director, shall have the authority to destroy originals of such records if such records have been converted to media of such quality which shall meet the minimum standards of the United States government or are judged by the archivist to lack historical or legal value as a permanent record. (Ord. BL2017-657 § 1, 2017)

Chapter 2.144

METROPOLITAN SOCIAL SERVICES COMMISSION

Sections:

2.144.010	**Authority to use the name "metropolitan social services."**
2.144.020	**Nashville Davidson County Continuum of Care Homelessness Planning Council established—Membership.**
2.144.030	**Duties and responsibilities of Nashville Davidson County Continuum of Care Homelessness Planning Council.**
2.144.040	**[Association with government.]**
2.144.050	**Cold weather response annual plan.**

2.144.010 Authority to use the name "metropolitan social services."

The metropolitan welfare commission of the metropolitan government is authorized to use the name "metropolitan social services," and to use such name in the performance of its functions and the transactions of its business. (Prior code § 2-1-101.4)

2.144.020 Nashville Davidson County Continuum of Care Homelessness Planning Council established—Membership.

A. The Nashville Davidson County Continuum of Care was established pursuant to federal regulations, including 24 C.F.R. Part 578, to create a collaborative, inclusive, community-based/inspired process and approach to planning and managing effective homeless assistance resources and programs to end homelessness in our community.

B. For the purpose of facilitating the process and approach of the Nashville Davidson County Continuum of Care, there is established the Nashville Davidson County Continuum of Care Homelessness Planning Council.

C. The Nashville Davidson County Continuum of Care Homelessness Planning Council shall be composed as follows:

1. Twenty-five voting members. Eight members shall be appointed by the metropolitan mayor. Fourteen members shall be elected by the full membership of the Nashville-Davidson County Continuum of Care in accordance with its Governance Charter. Five of the voting members shall have lived homelessness experience. Three members shall be either members of the metropolitan council or the metropolitan vice mayor, selected by the metropolitan vice mayor, who shall be non-voting members.

2. Designated advisors. Either upon request of the metropolitan mayor or the Nashville Davidson County Continuum of Care Homelessness Planning Council, the metropolitan mayor shall designate up to two advisors to assist the Nashville Davidson County Continuum of Care Homelessness Planning Council in carrying out its duties. The designated advisors shall be employees of departments of the metropolitan government that interact with individuals experiencing homelessness. These advisors are not permanent members of the Nashville Davidson County Continuum of Care Homelessness Planning Council and are not eligible to vote.

3. The initial slate of voting members shall be the existing voting members of the Metropolitan Homelessness Commission and the Nashville Davidson County Continuum of Care Governance Board. These members shall be divided into three classes, with terms expiring after one, two, and three years, respectively. Subsequent voting members shall serve three year terms. The number of members in each class shall be specified in the Nashville Davidson County Continuum of Care Governance Charter.

4. Attendance requirements. A regular and publicized meeting schedule of the Nashville Davidson County Continuum of Care Homelessness Planning Council shall be kept. The Nashville Davidson County Continuum of Care Charter shall have an attendance requirement for the governance board. All Nashville Davidson County Continuum of Care Homelessness Planning Council members shall comply with the attendance requirements specified in the Nashville Davidson County Continuum of Care Charter. If a voting member, appointed or selected, fails to meet the attendance requirements specified in the Nashville Davidson County Continuum of Care Charter, the Nashville Davidson County Continuum of Care Homelessness Planning Council may make recommendation to the metropolitan mayor to remove that member by two-thirds vote. The vacancy shall be filled in the same manner as the initial appointment.

D. The Nashville Davidson County Continuum of Care Homelessness Planning Council shall serve as an independent body and shall be empowered to make decisions and recommendations as the governance board for the Nashville-Davidson County Continuum of Care, as required by 24 C.F.R. Part 578.

E. The Metropolitan Homelessness Commission staff shall be known as the Metro Homeless Impact Division and shall be housed within the office of

homeless services. The Metro Homeless Impact Division shall provide staff and resources to assist the Nashville Davidson County Continuum of Care Homelessness Planning Council in carrying out the duties and responsibilities established by this chapter. (Ord. BL2024-582 § 3, 2024; Ord. BL2021-971 § 2, 2022; Ord. BL2018-1199 § 1, 2018; Ord. BL2014-777 § 1, 2014)

2.144.030 Duties and responsibilities of Nashville Davidson County Continuum of Care Homelessness Planning Council.

The Nashville Davidson County Continuum of Care Homelessness Planning Council shall have the following duties and responsibilities:

A. To implement a coordinated and focused approach to ending homelessness and to develop measurable objectives;

B. To fulfill all duties and responsibilities as the governance board for the Nashville Davidson County Continuum of Care, including compliance with 24 C.F.R. Part 578;

C. To hold regular meetings open to the public with published agendas;

D. To assure participation of all stakeholders, including persons experiencing homelessness;

E. To maintain accurate, current data on homeless populations; and

F. To educate the public, service providers, and other interested parties on issues related to homelessness. (Ord. BL2018-1199 § 2, 2018; Ord. BL2014-777 § 2, 2014)

2.144.040 [Association with government.]

The metropolitan homelessness commission is not and shall not be deemed to be a board or commission of the Metropolitan Government of Nashville and Davidson County. (Ord. BL2014-777 § 3, 2014)

2.144.050 Cold weather response annual plan.

The Metropolitan Social Services Commission shall adopt an annual plan detailing the provision of an overflow shelter for the homeless population in Nashville during cold weather. This annual plan shall include an assessment of the projected needs in Nashville for the upcoming year, as well as analysis and recommendations for metro's response and whether current funding will meet the projected needs. The annual plan shall be submitted to council by May 31 of each year. (Ord. BL2019-74 § 1, 2019)

Chapter 2.147

NASHVILLE ENTERTAINMENT COMMISSION*

Sections:

2.147.010	**Established.**
2.147.020	**Definitions.**
2.147.030	**Composition, membership, and term of office.**
2.147.040	**Mission of the commission.**
2.147.050	**Duties.**
2.147.060	**Nashville office of entertainment.**
2.147.065	**Staffing.**

2.147.010 Established.

There is hereby established a commission to be known as the "Nashville Entertainment Commission," referred to in this chapter as "commission." (Ord. BL2025-818 § 1, 2025)

2.147.020 Definitions.

"Entertainment industry" is defined as commercial activity that involves the production and sale of entertainment, including the music industry, film and television industry, theatre industry, fashion industry, video game industry, and all other creative industries.

"Film and television industry" is defined as commercial activity that involves the production, distribution, and sale of entertainment, whether in film, television, digital streaming content, virtual/augmented reality, or within the metaverse/omniverse.

"Music industry" is defined as commercial activity that involves concerts, festivals, tours, clubs and any other performance, production, promotion, distribution, or sale of recorded or live music.

"Occupations in the entertainment industry" include, but are not limited to, musicians, recording artists, songwriters, composers, music producers, record label executives, recording studio owners, recording engineers, music venue owners, performing rights organizations, actors, stunt performers, intimacy coordinator, film/television studio executives, screenwriters, directors, casting agents, film/television producers, crew members, editors, location scouts, videographers, voiceover artists, digital designers, grips, stagehands, film/television marketing professionals, entertainment related bankers, managers, publicists, stylists, theatre companies, fashion design/promotion, playwrights, theater directors, film/television/digital gaming composers, graphic software architects and other occupations not listed herein. (Ord. BL2025-818 § 1, 2025)

2.147.030 Composition, membership, and term of office.

A. The commission shall be composed of three councils, to be known as Music Advisory Council, the Film and Television Advisory Council, and the Entertainment Accountability Council. The Music Advisory Council shall be focused on the music industry, the Film and Television Advisory Council shall be focused on the film and television industry, and the Entertainment Accountability Council shall be focused, on ensuring a balance of perspectives, backgrounds, and experience in the entertainment industry.

B. The commission shall be composed of fifteen members. Four members shall be appointed by the mayor and confirmed by the council. Three members shall be selected by the council from nominations submitted by council members. Four members shall be selected by the council from nominations submitted from the entertainment industry at large. One member shall be selected by the International Alliance of Theatrical Stage Employees (IATSE) from its membership and confirmed by the council. One member shall be selected by the Screen Actors Guild - American Federation of Television and Radio Artists (SAG-AFTRA) from its membership and confirmed by the council. One member shall be selected by the American Federation of Musicians (AFM) from its membership and confirmed by the council. One member shall be selected by the Nashville Songwriters Association International (NSAI) from its membership and confirmed by the council. The executive director of the Metropolitan Arts Commission, the director of visual and performing arts for Metropolitan Nashville Public Schools, a representative of the Nashville Education, Community, and Arts Television Corporation, and a representative of the Nashville Convention and Visitors Corporation shall serve as ex officio, non-voting members and shall not be counted in determining a quorum.

C. Members of the commission shall serve without compensation.

D. Commission members shall serve staggered four-year terms. Of the initial members appointed, the members selected by the council from nominations submitted by the council shall be appointed for one year, the members appointed by the mayor and NSAI shall be appointed for two years, the members appointed by AFM, SAG-

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***Editor's note—**Ord. BL2025-818 § 1, adopted June 3, 2025, repealed the former Ch. 2.147, §§ 2.147.010—2.147.065, and enacted a new Ch. 2.147 as set out herein. The former Ch. 2.147 pertained to Nashville Music, Film, & Entertainment Commission and derived from Ord. BL2022-1631 § 1, 2023; Ord. BL2024-344 §§ 1, 2, 2024; Amdts. A and B to Ord. BL2024-344 §§ 1, 2, 2024.

AFTRA, and IATSE shall be appointed for three years, and the members selected by the council from nominations submitted by the entertainment industry at large shall be appointed for four years. (Ord. BL2025-818 § 1, 2025)

2.147.040 Mission of the commission.

The mission of the commission shall be to create policies to:

A. Promote the entertainment industry in Nashville and Davidson County and recruit projects and employment related to the entertainment industry.

B. Promote to the fullest extent allowed by law the success of all individuals, regardless of personal characteristics and life experience, within the entertainment industry.

C. Work to address quality of life issues facing individuals in the entertainment industry in Nashville and Davidson County.

D. Support small and independent businesses within the entertainment industry in Nashville and Davidson County.

E. Promote education initiatives and programming related to the entertainment industry.

F. Work with the Tennessee Entertainment Commission to achieve this mission. (Ord. BL2025-818 § 1, 2025)

2.147.050 Duties.

To carry out the commission's purposes, the commission shall have authority to:

A. Elect a chair and other officers as necessary to carry out the functions and duties of the commission.

B. Promulgate and maintain regulations and bylaws for the commission.

C. Select candidates for executive director to be presented to the mayor, pursuant to section 2.147.065. The commission may utilize the services of the department of human resources to assist in the recruitment of candidates.

D. Promote, market, and support the Nashville office of entertainment.

E. Meet no less than once per quarter. The Music Advisory Council, Film and Television Advisory Council, and Entertainment Accountability Council shall meet on an as needed basis, at the discretion of the chair of the commission.

F. To consult with experts in the fields of music, film, and entertainment industries as necessary to assist in the discharge of its duties.

G. Establish advisory committees, as needed, to address other creative industries and issues facing the entertainment industry. No more than three advisory committees may be created each year. The term of an advisory committee may last no more than one year, unless extended for an additional year by the commission. Each advisory committee shall have no more than seven members, one of whom must be a commissioner. The advisory committee must present a report to the commission regarding its recommendations or the status of its recommendations once a quarter. The advisory committee members must be residents of Davidson County and are subject to sections 2.222.010 and 2.222.020 of this code. (Ord. BL2025-818 § 1, 2025)

2.147.060 Nashville office of entertainment.

A. There shall be a Nashville office of entertainment, led by the executive director, to carry out the duties and mission of the commission. The work of the executive director and any staff shall be directed by the commission.

B. Among other duties as directed by the commission, the executive director and staff shall be responsible for:

i. Assisting the entertainment industry with securing necessary permitting.

ii. Building relationships for community engagement.

iii. Assisting with location scouting.

iv. Establishment of relationships with Metropolitan Nashville departments and non-governmental partners.

v. Any additional actions necessary to carry out the duties and responsibilities established by this chapter. (Ord. BL2025-818 § 1, 2025)

2.147.065 Staffing.

A. The work of the commission and of the Nashville office of entertainment shall be managed by the executive director, who shall be appointed by the mayor from candidates selected by the commission.

B. The executive director may be removed by the mayor only after consultation with the chair of the commission or another member of the commission chosen by the commission specifically for this consultation purpose. (Ord. BL2025-818 § 1, 2025)

Chapter 2.148

TOURISM AND CONVENTION COMMISSION

Sections:

2.148.010 **Established—Qualifications of members.**

2.148.020 **Appointment, term of office and vacancy filling.**

2.148.030 **Budgetary and fiscal matters—Rules for purchase of service agreements.**

2.148.010 Established—Qualifications of members.

For the purpose of promoting tourist, convention and recreational activity, there is established the metropolitan tourism and convention commission. This commission shall be comprised of nine persons, at least one of whom shall be associated with a "large hotel" as that term is defined in Section 5.12.010 of the Metropolitan Code, as amended; one of whom shall be an African-American; and one of whom shall be a female, provided, however, an African-American female shall not satisfy the requirement of one African-American and one female, selected by the mayor of the metropolitan government in the following manner:

A. Four commissioners from a list of six persons submitted by the local hotel and motel association; one of whom shall be associated with a "large hotel" as that term is defined in Section 5.12.010 of the Metropolitan Code, as amended;

B. One commissioner from a list of three persons submitted by the Nashville Area Chamber of Commerce;

C. Four commissioners selected by the mayor of the metropolitan government from tourist-related industries. (Ord. BL2000-406 § 1, 2000; Ord. 94-968 § 1, 1994; Ord. 93-861 § 1, 1994; Ord. 93-847 § 1, 1993; Ord. 92-288 § 1, 1992; prior code § 15-1-53(a))

Editor's note—The provision above designating commission seats based on race and gender is void pursuant to Public Chapter 458 (2025).

2.148.020 Appointment, term of office and vacancy filling.

Members of the commission shall be appointed by the mayor and confirmed by a majority of the whole membership of the council. They shall serve terms of three years each, except that of the members appointed July 1, 1994, one member from the local hotel and motel association and two members from a tourist-related industry appointed by the mayor shall serve a term of three years from the date of appointment; one member from the local hotel and motel association, one member from the Nashville Area Chamber of Commerce, and one member from a tourist-related industry appointed by the mayor shall serve a term of two years from the date of appointment; and two members from the local hotel and motel association and one member from a tourist-related industry appointed by the mayor shall serve a term of one year from the date of appointment. Any vacancy other than by expiration of term shall be filled for the unexpired term. (Ord. 94-968 § 2, 1994)

2.148.030 Budgetary and fiscal matters—Rules for purchase of service agreements.

A. As relating to budgetary and fiscal matters and expenditures, the commission shall be subject to the same provisions of the local organic law as the other boards and commissions established by the Charter of the metropolitan government, and the commission shall be responsible for preparing and submitting a program budget for all funds to be expendable pursuant to subsections (A)(1) and (2) of Section 5.12.060 of this code for appropriate action by the metropolitan government.

B. Administrative rules and procedures for establishing and implementing the purchase of service agreements under subsections (A)(1) and (2) of Section 5.12.060 of this code shall be promulgated and approved by the metropolitan mayor. These rules shall be filed with the metropolitan clerk within six months after passage of the ordinance codified in this chapter and Chapter 5.12 of this code. The commission shall operate pursuant to these rules. (Prior code § 15-1-53(c))

Chapter 2.149

METROPOLITAN HOUSING FUND COMMISSION

Sections:

2.149.010	**Established.**
2.149.020	**Membership and term of office.**
2.149.030	**Purpose of the commission.**
2.149.040	**Powers and duties.**

2.149.010 Established.

There is created and established a commission to be legally known as the "Metropolitan Housing Trust Fund Commission," referred to in this chapter as the "commission." The Department of Finance and Department of Law shall provide support and assistance to the commission as necessary. (Ord. BL2013-487 § 4, 2013)

2.149.020 Membership and term of office.

The commission shall be composed of seven members, who shall serve as such without compensation. One member of the commission shall be designated by the board of the metropolitan development and housing agency. One member of the commission shall be a member of the council designated by the vice-mayor for a term of two years and shall be a non-voting member. In no event shall the term of the council member extend beyond the council term in which they were elected. One member shall be designated by the continuum of care homeless planning council. Two members shall be elected by a majority vote of the whole membership of the council. The remaining two members of the commission shall be appointed by the mayor and approved by the metropolitan council. Members, except for the member of council designated by the vice mayor, shall serve terms of five years each, provided that the first members appointed shall serve terms of one, two, three, four, and five years respectively. Any vacancy due to any cause shall be filled for the unexpired term by the same appointing authority as the vacant appointment. (Ord. BL2024-582 § 4, 2024; Ord. BL2022-1528 § 6, 2023; Ord. BL2013-487 § 4, 2013)

2.149.030 Purpose of the commission.

The purpose of the commission shall be as follows:

A. To promote the study and development of good quality affordable housing;

B. To support education about and creation and development of good quality affordable housing, both rental and ownership;

C. To help create rental housing, housing for the disabled, and long-term affordable homeownership opportunities for citizens of Davidson County;

D. To oversee the management and operation of the Barnes Fund for Affordable Housing (the Barnes Fund). (Ord. BL2013-487 § 4, 2013)

2.149.040 Powers and duties.

In order to carry out and facilitate the commission's general purposes and oversight of the Barnes Fund, the commission shall have authority to:

A. Enter into one or more contracts with nonprofit agencies, procured under the Metropolitan Procurement Code, to assist the commission in carrying out its duties and in management of the Barnes Fund;

B. Elect a chairman and such other officers as it may deem necessary to carry out the functions and duties of the commission;

C. Promulgate and maintain its own regulations and bylaws;

D. Conduct its affairs, to select advisory committees or panels of experts as necessary to assist in the discharge of its duties;

E. Solicit, accept, and receive gifts of funds, goods, and services donated to the commission and to the Barnes Fund;

F. Receive and expend any money allocated to the Barnes Fund by the metropolitan government or donated to the Barnes Fund for the purposes expressed in this chapter;

G. Make recommendations to the metropolitan council regarding the awarding of grants from the Barnes Fund, including funds appropriated yearly by the metropolitan council through the operating budget ordinance, to deserving nonprofit organizations and nonprofit civic organizations, or as otherwise authorized by state law, supporting the purposes of the commission. Criteria for the awarding of such funds shall be established by the commission. The criteria shall include setting aside at least twenty percent of such grants to be used for the creation and preservation of affordable housing or capacity building for organizations that create or preserve affordable housing to be awarded to small nonprofit organizations, provided that a sufficient number of qualified applications are received. For the purposes of this subsection, "small nonprofit organizations" means nonprofit organizations with an annual operating budget of no more than four million dollars and a housing budget of no more than one million dollars. The commission shall submit a recommendation to the metropolitan council for the appropriation of funds to deserving nonprofit organizations consistent with T.C.A. § 7-3-314, as it may hereafter be amended. Once funds

have been appropriated by the metropolitan council to the deserving nonprofit organization(s), the commission shall enter into a grant contract with each such organization. No such grant contract shall become effective without the approval of the metropolitan department of law and director of finance. In the event the recipient organization fails to complete its obligations under the grant contract within twenty-four months from execution, the commission shall be authorized to rescind the contract and to reclaim previously appropriated funds from the organization, subject to terms and conditions within the grant contract allowing for such.

H. Perform any additional functions authorized by state law and consistent with the purpose of the commission. (Ord. BL2023-1731 § 1, 2023; Amdt. 1 to Ord. 2021-725 § 1, 2021; Ord. 2021-725 § 1, 2021; Ord. BL2018-1439 § 1, 2019; Ord. BL2013-487 § 4, 2013)

Division V. Other Agencies and Bureaus

Chapter 2.152

METRO BEAUTIFICATION AND ENVIRONMENT COMMISSION

Sections:

2.152.010	**Establishment.**
2.152.020	**Membership—Appointment, compensation and term of office.**
2.152.030	**Organization and staffing.**
2.152.040	**Powers and duties.**

2.152.010 Establishment.

There is established within the department of parks and recreation of the metropolitan government a division of such department, which shall be known as the metro beautification and environment commission. (Ord. 92-354 § 1, 1992; prior code § 2-1-53)

2.152.020 Membership—Appointment, compensation and term of office.

A. The metro beautification and environment commission shall be composed of thirty-five members as follows: one member from each councilmanic district within the county, who shall be appointed by the mayor. All members, shall serve without compensation and for terms of three years each except that of the members appointed July 1, 1992, members from Councilmanic Districts 1, 4, 7, 10, 13, 16, 19, 22, 25, 28, 31, 34 shall serve for a term of one year from the date of appointment; members from councilmanic districts 2, 5, 8, 11, 14, 17, 20, 23, 26, 29, 32, 35 shall serve for a term of two years from the date of appointment; members from Councilmanic Districts 3, 6, 9, 12, 15, 18, 21, 24, 27, 30 and 33 shall serve for a term of three years from the date of appointment. Members shall not serve more than two consecutive terms. The chairperson shall be a member of the metro beautification and environment commission and shall be elected by the membership. The chairperson shall serve for one year. The immediate past chairperson shall serve for one year as advisor and may or may not serve as a district representative.

B. In addition to these members, the following shall serve as ex officio members of the metro beautification and environment commission: the director of fire, the director of the department of metropolitan police, the director of codes administration, the director of parks and recreation, the director of public works, the director of the planning commission, and a representative of the mayor's staff, each to serve during his term of office; one member of the metropolitan board of education, one member of the metropolitan board of parks and recreation, and one member of the metropolitan board of health, such members to be selected by their respective boards for a term of one year. (Ord. 92-354 §§ 2, 3 (part), 1992; Ord. 89-881 § 1, 1989; prior code § 2-1-54)

2.152.030 Organization and staffing.

The metro beautification and environment commission shall be a division of the department of parks and recreation. All positions in the metro beautification and environment commission of the department of public works are hereby transferred to the department of parks and recreation. All persons whose position is transferred to the department of parks and recreation shall be subject to transfer according to the civil service rules. (Ord. 92-354 § 3 (part), 1992; prior code § 2-1-56)

2.152.040 Powers and duties.

A. The powers and duties of the metro beautification and environment commission shall be to advise the metropolitan director of parks and recreation and to recommend, coordinate and develop plans for improving cleanliness within the area of the metropolitan government by beautifying the streets, highways, alleys, lots, yards and other similar places within the metropolitan government. They shall further advise the director of parks and recreation concerning the removal and elimination of trash and other debris from the streets, highways, alleys, lots, yards, plots and other similar places; to encourage the placing, planting and preservation of trees, flowers, plants, shrubbery and other objects of ornamentation in the metropolitan government; and otherwise promote public interest in the general improvement of the appearance of the area of the metropolitan government; provided, that nothing herein shall be construed to abridge or change the powers and duties of the other commissions, departments, boards and like agencies of the metropolitan government.

B. In exercising its duties and powers, the metro beautification and environment commission shall advise with, recommend to and coordinate with other agencies of the metropolitan government the programs of which involve the cleanliness and appearance of the metropolitan government area.

C. The metro beautification and environment commission is not and shall not be deemed to be a board or commission of the metropolitan government. (Ord. BL2000-354 § 1, 2000; Ord. 92-354 § 3 (part), 1992; prior code § 2-1-55)

Chapter 2.153

BICYCLE AND PEDESTRIAN ADVISORY COMMISSION

Sections:

2.153.010	**Establishment.**
2.153.020	**Membership—Appointment, compensation and term of office.**
2.153.030	**Duties and purpose.**
2.153.040	**Meetings.**
2.153.050	**Departmental cooperation and staffing.**

2.153.010 Establishment.

There is hereby created and established a bicycle and pedestrian advisory commission. (Ord. BL2023-1882 § 1, 2023)

2.153.020 Membership—Appointment, compensation and term of office.

A. The bicycle and pedestrian advisory commission shall be composed of eleven voting members. Nine members shall be appointed by the mayor with special consideration given to the following categories for committee membership: non-profit community groups advocating for biking and walking; students or faculty members from a local high schools or universities; local organizations that represent disabled persons; transportation planning, policy, or design professionals; senior citizen advocacy organizations such as the AARP and Fifty-Forward; local bicycle clubs; walking, running, or hiking clubs; urban planning or multi-modal transportation support organizations; parks or greenways friends groups; and individuals who are interested in biking and walking. One member shall be appointed by the vice-mayor. One member shall be elected by the council. All appointments must be confirmed by a majority of the membership to which the council is entitled. All members shall serve without compensation. The membership of the commission shall reflect the diversity of citizens of Nashville and Davidson County. The chair shall be appointed by the mayor from the voting membership. The chair shall serve for one year.

B. In addition to these members, the following department representatives shall serve as ex officio members of the Bicycle and Pedestrian Advisory Commission: the mayor, the director of the metropolitan health department, the director of the parks and recreation department, the director of the department of transportation and multimodal infrastructure, the chief of the metropolitan police department, the superintendent of metropolitan public schools, the director of the metropolitan planning department, and the director of WeGo. Ex officio members are permitted to appoint a designee to serve in their stead. Ex officio members shall have no vote and shall not be counted in determining a quorum. Ex officio members will attend all meetings and provide program updates and support to the commission as needed and requested.

C. Members of the bicycle and pedestrian advisory commission shall serve for a term of four years; provided, however, that the initial members shall be appointed for staggered terms of two, three, and four years dating from the effective date of the ordinance codified in this chapter. Members shall continue in office until the expiration of the term for which they were appointed or until such time as they are reappointed, or their successors are appointed. A vacancy shall be filled in the same manner as a regular appointment and the person appointed shall serve the remainder of the term. The commission may determine a position is vacant based upon failure to attend two consecutive meetings. (Ord. BL2025-811 § 3, 2025; Ord. BL2023-1882 § 1, 2023)

2.153.030 Duties and purpose.

The duties and purpose of the bicycle and pedestrian advisory commission shall be to advise the mayor, the council, and relevant departments and to provide written formal recommendations when necessary, regarding the following goals and actions:

1. Promotion of bicycling and walking to the mayor, council, and departments.

2. Promotion of the WalknBike Strategic Plan and bicycle, greenway and pedestrian infrastructure projects to the mayor and council.

3. Promotion of the integration of bicycling, shared mobility devices, and walking in the metropolitan government's planning, design, and development of transportation facilities including bikeways and greenways.

4. Promotion of the integration of bicycling, shared mobility devices, and walking in the metropolitan government's planning process and implementation of community plans.

5. Coordination with the vision zero advisory committee, traffic and parking commission, and other relevant committees, including appointing a member to serve as liaison to these bodies.

6. Working with local businesses, governmental agencies, and community organizations to encourage bicycling and walking and promote community investment in bicycle racks, signage, markings and other facilities and programs.

7. Working with the metropolitan government, board of education, and community groups to foster programs to educate all age groups on safe bicycling and walking skills.

8. Developing and distributing informational, educational, and promotional materials for bicyclists, pedestrians, and motorists.

9. Providing guidance and serving as a resource to the department of transportation and multimodal infrastructure, department of parks and recreation and the planning department in developing long-range plans to encourage increased micromobility, bicycling, and walking.

10. Build a more inclusive bicycling community by representing the needs of the diverse population of bicyclists in the city.

11. Provide guidance to the mayor, council, and departments on the implementation of bike share systems and shared micromobility programs. (Amdt. 1 to Ord. BL2023-1882 § 1, 2023; Ord. BL2023-1882 § 1, 2023)

2.153.040 Meetings.

A. The bicycle and pedestrian advisory commission shall hold regular monthly meetings, but in no event shall the bicycle and pedestrian advisory commission meet less than ten times per year. The regular meetings shall be held at a date, time, and place to be determined by the bicycle and pedestrian advisory commission. Special meetings may be called by the chair. All meetings will be publicly noticed at least two weeks in advance. Agendas, meeting minutes, and any relevant documents shall be made available on the metropolitan government web site.

B. The bicycle and pedestrian advisory commission shall report quarterly to the transportation and infrastructure committee and the public facilities, arts, and culture committee of the council as needed and requested. Such a report may be in writing or by appearance.

C. No later than December 31 of each year, the bicycle and pedestrian advisory commission shall submit to the council and the mayor a report detailing the activities of the bicycle and pedestrian advisory commission during that year, including a report on improvements and remaining needs in the bicycling and walking infrastructure.

D. The commission shall, to the extent possible, hear from members of the public at called meetings. (Ord. BL2023-1882 § 1, 2023)

2.153.050 Departmental cooperation and staffing.

A. Departments, boards, and commissions of the metropolitan government shall work cooperatively with the bicycle and pedestrian advisory commission in conducting these requirements and shall provide assistance as requested by the bicycle and pedestrian advisory commission.

B. The department of transportation and multimodal infrastructure shall provide day to day staffing and assistance to the commission as it may require. (Ord. BL2023-1882 § 1, 2023)

Chapter 2.154

GREENWAY AND OPEN SPACE COMMISSION*

Sections:

2.154.010	**Establishment/membership.**
2.154.015	**Staffing.**
2.154.020	**Advisory committee.**
2.154.030	**Duties and responsibilities.**
2.154.040	**Additional authority.**
2.154.050	**Grant agreements.**
2.154.060	**Reports to council.**

2.154.010 Establishment/membership.

A greenway and open space commission is established for Nashville and Davidson County, to be composed of the following members:

A. Eight persons appointed by the mayor, who shall serve without compensation, and who shall serve for terms of three years, except that, of the members first appointed, two shall serve for a term of one year, two shall serve for a term of two years, and three shall serve for a term of three years;

B. Two members of the metropolitan council, one of whom shall be selected by that body from its membership, and one at-large council member selected by the vice mayor. Such council members selected shall be non-voting members who serve for a term not to exceed two years, which terms shall begin within sixty days after council elections, and sixty days after the middle of the council term;

C. Seven employees of the metropolitan government, serving as nonvoting ex officio members, representing related departments, as follows:

1. The mayor or his designee;

2. The director of the parks department or his designee;

3. The director of the planning commission or his designee;

4. The director of the department of public works or his designee;

5. A member of the board of parks and recreation, to be designated by that body;

6. The director of the department of water and sewerage services or his designee; and

7. The director of the metropolitan development and housing agency or his designee. (Amdt. 1 to Ord. BL2025-1062 § 1, 2025; Ord. BL2025-1062 § 1, 2025; Ord. BL2024-582 § 5, 2024; Ord. BL2017-725 §§ 4—6, 2017; Ord. 93-787 § 1, 1993)

2.154.015 Staffing.

The department of parks and recreation shall provide such staffing and assistance to the commission as it may reasonably require. (Ord. BL2017-725 § 7, 2017)

2.154.020 Advisory committee.

An advisory committee shall be created to advise the greenway commission. This committee shall include one member from each councilmanic district, selected by the council member from that district, and such other persons as may be designated by the greenway commission. (Ord. 91-13 § 2, 1991)

2.154.030 Duties and responsibilities.

A. The greenway commission shall have the following duties and responsibilities:

1. To identify areas of the county which are appropriate for development of greenways;

2. To develop a long-range, comprehensive greenway plan for the county, which will link existing parks where feasible;

3. To develop criteria for use in selection and prioritizing of areas for the development of greenways;

4. To recommend, within the first year of the commission's existence, a pilot project which will demonstrate the values of greenways;

5. To identify funding sources for greenways and means of encouraging donation of land or easements for greenways; and

6. To involve citizens in the planning process to the maximum extent feasible;

7. To oversee the management and operation of the Conservation Assistance Grant Fund;

8. To solicit and evaluate applications for and make grants from the Conservation Assistance Grant Fund to facilitate the conservation and preservation of properties in Davidson County having important natural, cultural, or environmental characteristics, whether by acquisition of an interest therein by the metropolitan government or otherwise;

9. Subject to the approval of the metropolitan council by resolution, to obtain for and in the name of the metropolitan government by purchase or donation interests in real property having important natural, cultural, or environmental characteristics and worthy of conservation or preservation;

*__Editor's note—__Ord. BL2017-725, § 3, adopted June 20, 2017, renamed Ch. 2.154 to read as herein set out. Formerly, said chapter was entitled "Greenway Commission."

10. To conduct studies and make recommendations to the metropolitan council and departments as may be appropriate concerning the conservation and preservation of local properties; and

11. To promote public understanding of the benefits of conserving and preserving Davidson County's important natural, cultural, and environmental properties and public access to such properties.

B. The greenway commission is not and shall not be deemed to be a board or commission of the metropolitan government. (Ord. BL2017-725 § 8, 2017; Amdt. 1 to Ord. 91-13, 11/19/91; Ord. 91-13 § 3, 1991)

2.154.040 Additional authority.

In order to carry out and facilitate its general purposes, the commission shall have the authority to:

A. Enter into contracts procuring assistance for the commission in administering the Conservation Assistance Grant Fund and otherwise performing its duties, provided that any such contract be procured in accordance with Title 4 of the Metropolitan Code of Laws;

B. Elect a chairperson and such other officers as may be necessary to carry out its duties;

C. Promulgate bylaws and regulations for the efficient conduct of its business;

D. Solicit, accept, and receive unrestricted gifts of funds, goods, and services on behalf of the Conservation Assistance Grant Fund; provided, however, that a restricted gift or grant to the commission shall require the approval of the metropolitan council by resolution;

E. Receive and expend monies appropriated by the metropolitan council or donated to the Conservation Assistance Grant Fund for the purposes expressed in this chapter;

F. Establish criteria for and enter into contracts for the making of grants to nonprofit entities from the Conservation Assistance Grant Fund; and

G. Perform any additional functions authorized by state law or metropolitan ordinance consistent with the commission's purpose. (Ord. BL2017-725 § 9, 2017)

2.154.050 Grant agreements.

Grant agreements proposed to be entered into by the commission shall be subject to the approval of the metropolitan council by resolution. Where the commission will be the grantor, each grant agreement shall provide that the commission has the right to approve and enforce any contract for the conservation or preservation of property to which the grantee is a party and in connection with which the grant has been made. No metropolitan government bond proceeds shall be used in the making of any grant by the commission unless through such grant the metropolitan government acquires an interest in real property. (Ord. BL2017-725 § 10, 2017)

2.154.060 Reports to council.

Not later than December 31 of each year, the commission shall submit to the metropolitan council a report detailing the activities of the commission during that year, including a list of every entity that has received a grant from the commission, the property to which each grant applied, and a description of the characteristics of the property warranting conservation or preservation. (Ord. BL2017-725 § 11, 2017)

Chapter 2.155

NASHVILLE SUSTAINABILITY ADVISORY COMMITTEE*

Sections:

2.155.010	**Establishment.**
2.155.020	**Composition, membership, and term of appointment.**
2.155.030	**Meetings.**
2.155.040	**Powers and duties.**

2.155.010 Establishment.

There is hereby established a committee to be known as the "Nashville Sustainability Advisory Committee," referred to in this chapter as "committee." (Ord. BL2024-582 § 2, 2024; Ord. BL2023-2004 § 1, 2023)

2.155.020 Composition, membership, and term of appointment.

A. The committee shall be composed of eleven voting members, to be appointed by the mayor and confirmed by the metropolitan council for a term of two years. All members shall serve without compensation. All members shall be residents of Davidson County. At least two members shall be representatives of environmental, sustainability, and resilience interests from the private, for-profit sector. At least two members shall be representatives of environmental, sustainability, and resilience interests from the non-profit community. At least one member shall be a representative from higher education. At least two members shall be representatives of the general public. At least one member shall be a representative of the mayor. In addition, two representatives from the metropolitan council shall serve as non-voting members. In no event shall the term of the council member extend beyond the council term in which they were elected.

B. The following individuals or their designees shall be invited to attend committee meetings: the director of general services, the director of metro water services, a member of the waste services team, the director of parks and recreation, the director of the Nashville department of transportation and multimodal infrastructure, the executive director of the metropolitan transit authority, the executive director of planning, the director of the office of emergency services, the director of social services, the director of schools, the executive director of the Metropolitan Development and Housing Authority, and the chief executive officer of Nashville Electric Service.

C. In the performance of its staff functions, the committee may utilize the office and clerical staff of the mayor. (Amdt. 1 to Ord. BL2025-811, 2025; Ord. BL2025-811 § 22, 2025; Ord. BL2024-582 §§ 2, 6, 2024; Ord. BL2023-2004 § 1, 2023)

2.155.030 Meetings.

The committee should meet a minimum of quarterly, but more frequently if determined necessary. All meetings shall be open to the public in compliance with the Tennessee Open Meetings Act. (Ord. BL2024-582 § 2, 2024; Ord. BL2023-2004 § 1, 2023)

2.155.040 Powers and duties.

The committee shall guide the metropolitan government's efforts to reduce greenhouse gas emissions and detrimental environmental impacts, such as negative impacts to air quality, water quality, and land resources, and increase economic competitiveness, sustainability, and resilience. Activities may include but are not limited to: identifying opportunities, issuing recommendations, and advising on implementation plans regarding climate mitigation and adaptation actions for the mayor's office, the metropolitan council, departments, offices and agencies of the metropolitan government; identifying funding and financing resources that the metropolitan government can leverage in executing environmental, sustainability and resilience projects; advising the metropolitan government where there may be opportunities to collaborate across departments, across levels of local, state, and federal government, and with non-governmental organizations on environmental, sustainability, and resilience topics; and identifying opportunities to further equity and reduce disparate impacts resulting from the effects of climate change. (Ord. BL2024-582 § 2, 2024; Ord. BL2023-2004 § 1, 2023)

***Editor's note—**Ord. BL2023-2004, § 1, adopted August 1, 2023, set out provisions intended for use as Ch. 2.153, §§ 2.153.010—2.153.040. At the editor's discretion, to prevent duplication of section numbers, these provisions have been included as Ch. 2.155, §§ 2.155.010—2.155.040.

Chapter 2.156

EMERGENCY COMMUNICATIONS DISTRICT

Sections:

2.156.010	**Created.**
2.156.020	**Membership—Appointment and term of office.**
2.156.030	**Powers and duties—Statutory authority.**

2.156.010 Created.

There is created an emergency communications district to be known as the "emergency communications district of Metropolitan Nashville and Davidson County" within the boundaries of the Metropolitan Government of Nashville and Davidson County. (Ord. 88-609 § 1, 1989)

2.156.020 Membership—Appointment and term of office.

A. The board of directors of the emergency communications district shall have nine members, appointed by the metropolitan county mayor, subject to confirmation by the metropolitan county council. Appointments to the board of directors shall include members selected from minorities as well as members of the sex which historically has been underrepresented on boards and commissions of the metropolitan government; provided, however, that one member to the board shall be selected from each of the school districts of the metropolitan board of public education.

B. Members of the board of directors shall serve for a term of four years; provided, however, that the initial members shall be appointed for staggered terms of two, three and four years, dating from the effective date of the ordinance codified in this chapter. The members shall serve without compensation. (Amdt. 1 to Ord. 88-609, 12/20/88; Ord. 88-609 § 3, 1989)

Editor's note—The provision above designating board seats based on race and gender is void pursuant to Public Chapter 458 (2025).

2.156.030 Powers and duties—Statutory authority.

The emergency communications district shall be vested with and exercise such powers as are authorized by the Emergency Communications District Law, Chapter 867, Public Acts 1984 (T.C.A. § 7-86-101 et seq.), as the same is or may be modified from time to time. (Ord. 88-609 § 2, 1989)

Chapter 2.160

COMMUNITY EDUCATION COMMISSION*

Sections:

2.160.010	**Created.**
2.160.020	**Membership—Appointment and term of chairman and members.**
2.160.030	**Officers.**
2.160.040	**Meetings.**
2.160.050	**Powers and duties.**
2.160.060	**Executive director—Authority and qualifications.**

2.160.010 Created.

There is created and established a "community education commission" as a commission of the Metropolitan Government of Nashville and Davidson County to be referred to in this chapter as "commission". (Ord. BL2009-501 § 3, 2009)

2.160.020 Membership—Appointment and term of chairman and members.

A. The commission shall consist of seven members to be appointed as follows:

1. The mayor shall appoint two regular members and the metropolitan council shall confirm each appointee.

2. The metropolitan council shall appoint three regular members.

3. One member shall be appointed by the director of schools to serve as his/her representative without confirmation by the metropolitan council.

4. One member shall be appointed by the mayor to serve as his/her representative without confirmation by the metropolitan council.

B. The members of the commission shall serve without compensation for terms of three years each, except that, of the first members appointed as regular members by the metropolitan council, one shall serve for a term of one year and two for a term of two years.

C. Any vacancy due to any cause shall be filled in the same manner as the original appointment and shall be for the unexpired portion of the term. (Ord. BL2013-499 § 1, 2013; Ord. BL2009-501 § 3, 2009)

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*__Editor's note—__Ord. BL2009-501, § 2, adopted August 18, 2009, repealed the former Ch. 2.160, §§ 2.160.010—2.160.030, and § 3 of said ordinance enacted a new Ch. 2.160 as set out herein. The former Ch. 2.160 pertained to community education alliance and derived from prior Code §§ 2-1-101.31—2-1-101.33; Ord. 89-1018, §§ 1, 2, adopted 1990.

2.160.030 Officers.

Immediately upon appointment and qualification, the commission shall elect one of its members as chairperson who shall serve for a period of one year, or until his/her successor shall have been chosen for the ensuing term. The commission may choose such other officers as it deems necessary. (Ord. BL2009-501 § 3, 2009)

2.160.040 Meetings.

The commission shall hold regular meetings at least quarterly for the conduct of its business, and may hold more frequent regular meetings as its bylaws may provide. It may hold special meetings as may be deemed necessary, the same to be called or held as provided in its bylaws. (Ord. BL2009-501 § 3, 2009)

2.160.050 Powers and duties.

A. The powers, duties and responsibilities of the commission shall be to:

1. Oversee the operation of the community education program;

2. Approve the administrative contracts for the community education program, which includes the number of sites, locations, and the review of the budget at each site;

3. Establish rules and regulations governing the operation of the community education program;

4. Establish a fee structure for the classes offered through the community education program and approve the allocation of revenues among the various sites/programs; and

5. Employ an executive director.

B. In the performance of these powers, duties and responsibilities, the commission shall have the authority to:

1. Enter into a memorandum of understanding with the metropolitan board of public education for the use of board of education facilities;

2. Within its budget appropriation and other funds at its disposal, employ personnel and enter into contracts for such services as it may require;

3. Enter into agreements and receive such grants or assistance, or both, as may be available from the federal or state governments for the purposes for which the commission is established, and also to receive gifts or donations for such purposes.

C. Employees hired by the commission shall not be afforded civil service protection, but shall be in the unclassified service. (Ord. BL2009-501 § 3, 2009)

2.160.060 Executive director—Authority and qualifications.

A. There shall be created the position of executive director for the commission. The executive director shall be a non-civil service position and shall serve at the pleasure of the commission. The executive director shall be paid such compensation as shall be fixed by the commission within its budgeted appropriations.

B. The duties and responsibilities of the executive director shall be established by the commission, which shall include, but not be limited to:

1. Oversight and management of the budget of the organization;

2. The supervision of employees;

3. The management of the various community education sites;

4. Serve as a liaison to all community education stakeholders;

5. Provide regular reports to the commission and director of finance regarding the operation of the community education program, including statistical data regarding the number of participants for each program and the revenue generated. (Ord. BL2009-501 § 3, 2009)

Chapter 2.164

METROPOLITAN NASHVILLE GENERAL HOSPITAL

Sections:

2.164.010	**Admittance conditions—Discrimination prohibited.**
2.164.020	**Agreements with the metropolitan hospital authority.**
2.164.050	**Contracting authority for the board of hospitals.**

2.164.010 Admittance conditions—Discrimination prohibited.

A. Physicians and nurses of Metropolitan Nashville General Hospital shall treat all patients appearing for emergency care, the existence of such emergency to be determined by the hospital staff.

B. All reputable, qualified and licensed practicing physicians in Davidson County shall be entitled to commit or have committed, without regard to race, color or creed, and in keeping with rules and requirements of the joint commission of hospitals accreditation, to the Metropolitan Nashville General Hospital, patients for private care by them and at their direction, provided such person meets the financial requirements for admittance. (Prior code § 21-1-1)

2.164.020 Agreements with the metropolitan hospital authority.

A. Until June 30, 2019, any agreement entered into between the Metropolitan Government of Nashville and Davidson County and the metropolitan hospital authority regarding the operations of Metropolitan Nashville General Hospital, or any successor hospital operated by the Metropolitan Hospital Authority, shall include provisions requiring the hospital to offer in-patient services.

B. Until June 30, 2019, the mayor shall not terminate any agreement between the Metropolitan Government of Nashville and Davidson County and the metropolitan hospital authority without prior approval of the metropolitan council by resolution. (Ord. BL2018-1055 § 1, 2018)

2.164.050 Contracting authority for the board of hospitals.

The board of hospitals may enter into contracts for the receipt of payment of health care service with companies, corporations, or organizations which are in the business of providing health care insurance coverage to companies, individuals or employees or with companies, corporations or organizations which are in the business of paying for health care services on behalf of an employer or other entity; and such contract must be approved and signed by the metropolitan department of law, signed by the director of finance, and filed with the office of the metropolitan clerk. No such contract shall create liability sounding in tort on the part of the Metropolitan Government for an amount exceeding the limits specified in the Tennessee Governmental Tort Liability Act 29-20-101 et seq. Any liability on the part of the metropolitan government sounding in contract shall not exceed the fees paid by the contractor to the metropolitan government under the contract. (Amdt. 1 with Ord. 98-1353 § 1, 1998)

Chapter 2.168

METROPOLITAN HIGHWAY AND TRANSPORTATION SAFETY COORDINATING COUNCIL

Sections:

2.168.010	**Created—Powers and duties.**
2.168.020	**Membership.**
2.168.030	**Authority for operations—Contracts.**
2.168.040	**Planning staff and assistance of other personnel.**
2.168.050	**Actions requiring appropriations and grants.**

2.168.010 Created—Powers and duties.

There is created and established a metropolitan highway and transportation coordinating council, which shall be charged with the following duties and responsibilities, and shall have the following powers:

A. Implementation of programs in highway and transportation to promote the safety, security and dignity of all Nashvillians;

B. The formulation, submission and administration of action grants requested to the proper agencies within the state and federal agency;

C. The maintenance of such records and documentation as are required, the proper utilization of federal funds, and compliance with state requests for statistical and substantive information requests to proper planning at the statewide level;

D. The monitoring and evaluation of all component agency planning activities which are likely to affect implementation of highway and transportation safety to insure conformity therewith;

E. The encouragement of component agency self-analysis and internal modernization in order to better meet the needs of the community;

F. The coordination of system-wide and component agency endeavors to formulate innovative legislative programs; and the evaluation of such proposed legislation to insure conformity with al agencies within metropolitan government;

G. The formulation of research and experimental programs to shed light on the overall problems of highway and transportation safety in Metropolitan Nashville and Davidson County. (Prior code § 2-1-101.46)

2.168.020 Membership.

A. Membership in the metropolitan highway and transportation safety coordinating council shall be the mayor of Metropolitan Nashville; the executive secretary of traffic and director of the metropolitan legal department; the chief of police; the presiding general sessions judge; a representative of the department of education; the director of public works; the director of data processing; the chief traffic engineer for the traffic and parking commission; the chief of the fire department; the fire marshal; the director of emergency medical service; the director of the planning commission; the director of the criminal justice coordinating council; the State Highway Safety Coordinator; four metropolitan government citizens; the director of metropolitan hospitals; the director of the metropolitan transit authority; the director of civil defense; and the director of finance, who shall be a nonvoting member. Other ex officio members may be appointed from time to time as the need arises. (Ord. 89-1019 §§ 1, 2, 1989; prior code § 2-1-101.47)

2.168.030 Authority for operations—Contracts.

The metropolitan highway and transportation safety council shall conduct its operations in accordance with the Charter, ordinances of the metropolitan government, and executive and administrative orders issued by the mayor. The council is expressly authorized, acting through the metropolitan mayor, to enter into such contracts as will further its policies and programs, and are consistent with its budgetary limitations. (Prior code § 2-1-101.49)

2.168.040 Planning staff and assistance of other personnel.

In order to facilitate more effective policymaking, planning and plan implementation, the metropolitan highway and transportation safety coordinating council is authorized to retain a professional planning staff. The council may set forth such positions as it deems necessary, consistent with its administrative duties, and may employ such persons within its budgetary limitations. The council is further authorized to call upon existing personnel in the service of the metropolitan government to assist in the fulfillment of its responsibilities in conformity of other agencies within local, state and federal government. (Prior code § 2-1-101.48)

2.168.050 Actions requiring appropriations and grants.

Any and all actions of the highway and transportation safety coordinating council involving the appropriation of funds and grant applications shall be submitted, by resolution, to the metropolitan council for approval. (Prior code § 2-1-101.50)

Chapter 2.172

HOUSING AND HOME FINANCE AGENCY REQUIREMENTS

Sections:

2.172.010 Conformance with federal regulations required.

2.172.010 Conformance with federal regulations required.

A. The United States of America and the Housing and Home Finance Administrator are hereby assured by the council of the Metropolitan Government of Nashville and Davidson County of full compliance with the Rules and Regulations of the Housing and Home Finance Agency effectuating Title VI of the Civil Rights Act of 1964.

B. Title VI of the Civil Rights Act of 1964 will apply to all projects of the metropolitan government just as fully as if specifically enumerated herein.

C. The board of commissioners of the Nashville housing authority, all departments, commissions, boards, agencies and services of the metropolitan government, and all educational institutions and hospitals of this metropolitan government offering or proposing public facilities as noncash local grant-in-aid credits, fully and immediately conform with all provisions of such Act and regulations, and do and perform all things necessary to indicate the recognition that Title VI of the Civil Rights Act of 1964 and the regulations and policies of the Housing and Home Finance Agency effectuating said Title and prohibiting discrimination on the grounds of race, color or national origin will be complied with in the policies and practices of any such public facility, hospital or educational institution, and assuring the United States and the Housing and Home Finance Administration that any such public facility offered as a noncash local grant-in-aid will be available to and serve all persons without regard to race, color or national origin.

D. The board of commissioners of the Nashville Housing Authority is authorized to fully comply with the rules and regulations of the Housing and Home Finance Agency, the Urban Renewal Authority and the Public Housing Authority, applying to its contracts with any agent, contractor or subcontractor, requiring them to comply with Title VI of the Civil Rights Act of 1964, or any other rules, regulations or presidential proclamations prohibiting discrimination because of race, color, creed or national origin, and to keep such public records showing compliance therewith as shall be required by such public agencies. (Prior code § 14A-1-13)

Chapter 2.174

RESERVED*

*Editor's note—Ord. BL2007-1, § 5, adopted October 16, 2007, repealed Ch. 2.174, §§ 2.174.010—2.174.090, which pertained to district management corporation and derived from Ord. 98-1037 § 1 (part), 1998, as amended; Ord. BL2000-404 § 1, 2000; Ord. 2002-1064 § 1, 2002.

Chapter 2.175

RESERVED*

*Editor's note—Ord. BL2020-295, § 1, adopted June 16, 2020, effective July 1, 2020, repealed Ch. 2.175, §§ 2.175.010—2.175.040, which pertained to Nashville Career Advancement Center and derived from Ord. BL2001-697 § 1 (part), 2001; Ord. BL2015-1276 § 1, 2015. Ord. BL2020-295, § 2, states: "That all the functions of NCAC, as set out in BL2001-697, are hereby transferred to and will hereafter be under the supervision of MAC."

The user's attention is directed to Chapter 2.108, Metropolitan Action Commission.

Chapter 2.176

GULCH CENTRAL BUSINESS IMPROVEMENT DISTRICT

Sections:

2.176.010	**District created—Boundary.**
2.176.020	**Purposes and mission.**
2.176.030	**Liberal construction.**
2.176.040	**Definitions.**
2.176.050	**District management corporation.**
2.176.060	**District management corporation powers.**
2.176.070	**Annual budget.**
2.176.080	**Estimated costs and rate of levy; special assessment procedure.**
2.176.090	**Dissolution of the district management corporation.**

2.176.010 District created—Boundary.

In accordance with the provisions of and established pursuant to Tennessee Code Annotated Section 7-84-501, et seq., there is hereby created a Gulch Central Business Improvement District (GCBID) which shall include all properties within that area of the city bounded and generally described as follows:

Beginning at the intersection of 13th Avenue South and Broadway, proceeding northeasterly along the southern boundary of Broadway to the northeastern corner of parcel 093-09-0-328.00, thence southeasterly along the western boundary of the CSX Railroad Right-of-Way to the intersection of Interstate 40 W, proceeding generally northwesterly along the eastern boundary of the Interstate 40 W right-of-way, back to the originating point of the intersection of 13th Avenue South and Broadway. (Ord. BL2015-67 § 1, 2016; Ord. BL2006-1123 § 1, 2006)

2.176.020 Purposes and mission.

A. The metropolitan council hereby finds and declares that the establishment of a GCBID will promote the successful and continued revitalization of the Gulch area of downtown Nashville, thereby furthering the health, safety, morals and general economic welfare of Metropolitan Nashville and Davidson County.

B. The purpose and mission of this GCBID is hereby declared to be:

To undertake and provide an enhanced level of programs and services not provided by the metropolitan government which will help maintain the Gulch area of downtown Nashville as a clean, safe and vibrant place to work, live, shop, play and invest. (Ord. BL2015-67 § 1, 2016; Ord. BL2006-1123 § 1, 2006)

2.176.030 Liberal construction.

This ordinance, being necessary to secure and preserve the public health, safety, convenience and welfare, shall be liberally construed to effectuate its purposes. (Ord. BL2015-67 § 1, 2016; Ord. BL2006-1123 § 1, 2006)

2.176.040 Definitions.

A. As used in this ordinance, unless a contrary meaning clearly appears:

1. "Assessed value" means value as assessed for municipal tax purposes.

2. "District" or "Gulch Central Business Improvement District" or "GCBID" means the central business improvement district created by this ordinance.

3. "District management corporation" means the board or organization created or the organization appointed to act as an advisory board for the purpose of making and carrying out recommendations for the use of special assessment revenues, and for the purpose of administering activities within and for the district and the provision of services and projects within and for the district.

4. "Initiating petition" means the petition filed in the office of the metropolitan clerk requesting the establishment of the GCBID.

5. "Owner" means the record owner of real property in fee or a representative of such owner duly authorized to act for and on behalf of said owner. (Ord. BL2015-67 § 1, 2016; Ord. BL2006-1123 § 1, 2006)

2.176.050 District management corporation.

A. There is hereby authorized a district management corporation to be chartered pursuant to the provisions of the Nonprofit Corporation Act of Tennessee for the purpose of administering the special assessment revenues and the activities within and for the district, the making of improvements within and for the district, and the provision of services and projects within and for the district.

B. The district management corporation shall be governed by a board of directors consisting of at least eight members, but no more than thirteen members. At least three members shall be appointed as provided in sub-section C below. All members shall be property owners or have offices within the district. At least two of these members shall be large property owners, at least two shall be small property owners, as defined in the Amended and Restated Bylaws of The Gulch Business Improvement District, Inc., at least one of the members shall be a commercial tenant and at least one of the members shall be the owner-occupant of a residence in

the district. Board members serve a three-year term. At the end of the terms, these seats shall then be filled at an annual meeting upon nomination by the outgoing board members and confirmation by a majority of the owners of real property in the district voting in the election. A property owner may vote by proxy vote. The executive director of the metropolitan development and housing agency shall serve a recurring term as a voting member.

C. The Speaker of the Senate of the State of Tennessee shall appoint the senator whose senate district includes the majority of the area contained within the GCBID to serve as an ex officio member, and the Speaker of the House of Representatives of the State of Tennessee shall appoint the representative whose house district includes the majority of the area contained with the GCBID as an ex officio member. In addition, any member of council whose council district includes any of the area contained within the GCBID shall serve as an ex officio member. The ex officio members shall serve for the term for which they are elected and shall not be counted in determining the presence of a quorum.

D. Vacancies on the board for elected members shall be filled by the remaining board members present and voting to fill the vacancy. (Ord. BL2015-67 § 1, 2016; Ord. BL2006-1123 § 1, 2006)

2.176.060 District management corporation powers.

A. In furtherance and not in limitation of the general powers conferred upon a CBID by Chapter 84 of Title 7 of the Tennessee Code Annotated, and in keeping with the purposes of the GCBID set forth herein, it is expressly provided that the district management corporation shall have the following powers which shall be exercised at the discretion of the district management corporation acting through its board of directors, as follows:

1. Expanded maintenance and cleaning services, enhanced safety and hospitality services;

2. Additional streetscape and landscape programs;

3. Communication and marketing, district advocacy and district management;

4. To provide services for the improvement and operation of the district, to supplement those provided by the metropolitan government, as follows:

a. Promotion and marketing;

b. Advertising;

c. Health and sanitation;

d. Public safety;

e. Elimination of problems related to traffic and parking;

f. Security services;

g. Recreation;

h. Cultural enhancements;

i. Activities in support of business or residential recruitment, retention and management development;

j. Aesthetic improvements, including the decoration, restoration or renovation of any public space or of building facades and exteriors in public view which confer a public benefit;.

k. Professional management, planning and promotion of the district;

l. Consulting with respect to planning, management, and development activities;

m. Furnishing of music in any public place;

n. Design assistance; and

o. Such other services as are authorized by Tennessee Code Annotated, Section 7-84-520.

5. To enter into contracts and agreements with other persons or entities.

6. To hire employees or retain agents, engineers, architects, planners, consultants, attorneys and accountants.

7. To acquire, construct, install and operate public improvements contemplated by this Ordinance and all property rights or interests incidental or appurtenant thereto, and to dispose of real and personal property and any interest therein including leases and easements in connection therewith.

8. To manage, control and supervise:

a. All the business and affairs of the district;

b. The acquisition, construction and installation and operation of public improvements within the district;

c. The operation of district services therein.

9. To construct and install improvements across and along any public street, alley, highway, stream of water or water course in accordance with state and local laws, rules or regulations.

10. To construct and operate child care facilities.

11. To accept, administer and comply with the conditions and requirements respecting any appropriation of funds or any gift, grant or donation of property or money to the Gulch Central Business Improvement District; and

12. To exercise all rights and powers necessary or incidental to or implied from the specific powers granted in this section.

B. All services to the district listed above shall be provided by the district management corporation as a service to and in support of the metropolitan government and such services are to be paid for out of revenues from the special assessment. Revenues from special assessments shall be used to supplement and not to pay for the same level of services provided by the metropolitan government within the district as are provided throughout the urban services district. In no event will the level of

urban services provided to the district be decreased as a result of the enhanced level of services provided through the special assessment revenues; provided, however, the level of urban services may be decreased for other reasons. In carrying out these responsibilities, the district management corporation must comply with all applicable provisions of law, including Chapter 84 of Title 7 of Tennessee Code Annotated, all city resolutions and ordinances, and all regulations lawfully imposed by the state auditor or other state agencies. (Amdt. 1 to Ord. BL2015-67 § 1, 2016; Ord. BL2015-67 § 1, 2016; Ord. BL2006-1123 § 1, 2006)

2.176.070 Annual budget.

The district management corporation shall annually submit to the metropolitan council a financial report and a written report of its activities for the preceding year together with a proposed budget for the next year. The annual budget shall include a projection of revenues from the special assessment and a projection of expenditures for projects, services and activities of the district management corporation and shall be reviewed and approved by the metropolitan council, or if not approved shall be returned to the board of directors for revision and resubmission until the metropolitan council shall approve the annual budget. (Ord. BL2015-67 § 1, 2016; Ord. BL2006-1123 § 1, 2006)

2.176.080 Estimated costs and rate of levy; special assessment procedure.

A. The estimated costs of the initially proposed improvements, services projects and other permitted uses of special assessment revenues is four hundred eighty thousand dollars.

B. The initial rate of levy of the special assessment for the GCBID shall be a rate of assessment not exceeding eighteen cents per one hundred dollars of assessed value of real property for calendar year 2017, and shall be $0.1081 per one hundred dollars of assessed value for the 2017 metro tax billing to fund the 2018 GCBID budget of four hundred eighty-two thousand dollars. Such rate of levy shall continue in force until changed by the metropolitan council in accordance herewith. A change in the rate of levy of such special assessment may be initiated only by a resolution of the District Management Corporation requesting that the rate be changed. Upon receipt of this resolution from the District Management Corporation, the metropolitan council must hold a public hearing on whether there should be a change in the rate of levy for the special assessment.

C. Beginning in 2016, special assessments shall be levied against all taxable real property within the GCBID pursuant to a special assessment roll of all owners of real property within the district as shown in the records of the Assessor of Property for the Metropolitan Government of Nashville and Davidson County, including owners of leaseholds on property owned by the Industrial Development Board of the Metropolitan Government of Nashville and Davidson County.

D. Notice of the special assessment shall be issued simultaneously with tax notices for regular Metropolitan Nashville real property taxes, and revenues from the special assessment shall be collected by the metropolitan trustee and placed into a segregated account subject to the direction of the metropolitan council and the district management corporation to the extent it is empowered by this ordinance.

E. Special assessments shall be imposed and collected annually as set forth hereinabove and changes in the rate or additions to the rate of the special assessment may be made only on an annual basis and only in accordance with the procedure set forth in Section 2.176.080 B.

F. Penalty and interest in the amount permitted by state law shall be added to any such assessment or installment thereof not paid on or before the date prescribed by the Metropolitan Government of Nashville and Davidson County. (Ord. BL2017-787 § 1, 2017; Amdt. 1 to Ord. BL2015-67 § 1, 2016; Ord. BL2015-67 § 1, 2016; Ord. BL2008-213 § 1, 2008; Amdt. 1 to Ord. BL2006-1123 § 1, 2006; Ord. BL2006-1123 § 1, 2006)

2.176.090 Dissolution of the district management corporation.

A. The district shall be dissolved without further action by the district management corporation or the metropolitan council on December 31, 2026. However, the district shall not be dissolved if, prior to that date the metropolitan council, by ordinance, determines that the district should be continued and a petition that satisfies the requirements of the Central Business Improvement Act, T.C.A. Section 7-84-501 et seq. is filed requesting that the district be continued.

B. The metropolitan council may dissolve the district upon receipt of a written petition filed either: (a) by the owners of seventy-five percent of the assessed value of the taxable real property in the district based on the most recent certified city property tax rolls; or (b) by fifty percent of the owners of record within the district.

C. The district may not be dissolved if the metropolitan government has outstanding any bonds, notes or other obligations payable solely from the special assessment revenues levied on the real property

within the district, in which case such dissolution may occur only at such time as such bonded indebtedness has been repaid in full or the metropolitan government pledges to the payment of such indebtedness its full faith and credit and unlimited taxing power. Upon dissolution of the district, any unencumbered assessment proceeds remaining under the control of the district shall be disbursed to the owners of district real property pro rata, based upon the amounts of the respective assessments. (Ord. BL2015-67 § 1, 2016; Ord. BL2006-1123 § 1, 2006)

Chapter 2.177

DOWNTOWN CENTRAL BUSINESS IMPROVEMENT DISTRICT (DOWNTOWN CBID)*

Sections:

2.177.010	**District created; boundary.**
2.177.020	**Purposes and mission.**
2.177.030	**Liberal construction.**
2.177.040	**Definitions.**
2.177.050	**District management corporation.**
2.177.060	**District management corporation powers.**
2.177.062	**District annual reporting.**
2.177.064	**District grievance procedures.**
2.177.070	**Annual budget.**
2.177.080	**Estimated costs and rate of levy; special assessment procedure.**
2.177.090	**Dissolution of the district management corporation.**

2.177.010 District created; boundary.

A. In accordance with the provisions of and established pursuant to Tennessee Code Annotated § 7-84-501, et seq., there is hereby created a Downtown Central Business Improvement District (Downtown CBID), which shall include all properties within that area of the city bounded and generally described as provided in this section.

B. From and after the effective date of this section, the boundaries of the Downtown CBID shall be as follows, all of which is more particularly identified on the map attached to this ordinance and on file with the metropolitan clerk:

With an eastern boundary centerline of the Cumberland River from James Robertson Parkway to the eastern boundary of parcels east of Lea Avenue. The southern boundary is from the Cumberland River, the eastern boundary of parcels east of Lea Avenue to Hermitage Avenue; continuing along the centerline of Lea Avenue from Hermitage Avenue to Lafayette Street; thence the centerline of Lafayette Street northwest to 7th Ave. S. Proceed south to the intersection of 7th Ave South and Drexel Street. Then, continue west on Drexel St to 8th Ave S.; with the centerline of 8th Avenue S southward to Gleaves Street and its intersection of CSX railroad. The western boundary is the centerline of the CSX RR from Gleaves Street to Broadway. Along the centerline of Broadway southwest to the intersection of George L. Davis Blvd. Continuing along the centerline of George L Davis Blvd northward to the intersection of Josephine Holloway Ave. Continuing along the western lines of parcels 09204039000 and 09204033700 to the CSX railroad. Thence, northeast to Harrison Street continue to Rosa L. Parks Blvd. Thence southward along the centerline of Rosa L. Parks Blvd to the intersection of Dr. Martin L. King Jr. Blvd. Along the centerline of Dr. Martin L. King Jr. Blvd to the intersection of 11th Ave. N. Continuing along the centerline of 11th Ave N. to the intersection of Broadway centerline of Broadway to of 10th Avenue to the centerline northern boundary of parcels along Broadway to 9th Avenue N; centerline of 9th Avenue N to Union Street; centerline of Union Street to 6th Avenue N; centerline of 6th Avenue N to Charlotte Avenue; centerline of Charlotte Avenue to 3rd Avenue N; centerline of 3rd Avenue N to James Robertson Parkway; centerline of James Robertson Parkway to the Cumberland River; plus the addition of the two parcels of property located between 9th Avenue N. and YMCA Way, being Parcel Nos. 09305016100 and 09305016000.

C. From and after January 1, 2027, the boundaries of the Downtown CBID shall be as follows:

With an eastern boundary centerline of the Cumberland River from James Robertson Parkway to the eastern boundary of parcels east of Lea Avenue. The southern boundary is from the Cumberland River, the eastern boundary of parcels east of Lea Avenue to Hermitage Avenue; continuing along the centerline of Lea Avenue from Hermitage Avenue to Lafayette Street; thence the centerline of Lafayette Street northwest to 7th Ave. S. Proceed south to the intersection of 7th Ave South and Drexel Street. Then, continue west on Drexel St to 8th Ave S.; with the centerline of 8th Avenue S southward to Gleaves Street and its intersection of CSX railroad. thence southeasterly along the western boundary of the CSX Railroad Right-of-Way to the intersection of Interstate 40 W, proceeding generally northwesterly along the eastern boundary of the Interstate 40 W to the CSX railroad. Thence, northeast to Harrison Street continue to Rosa L. Parks Blvd. Thence southward along the centerline of Rosa L. Parks Blvd to the intersection of Dr. Martin L. King Jr. Blvd. Along the centerline of

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***Editor's note—**Ord. BL2025-846 § 1, adopted July 15, 2025, repealed the former Ch. 2.177, §§ 2.177.010—2.147.090, and enacted a new Ch. 2.177 as set out herein. The former Ch. 2.177 pertained to similar subject matter and derived from Ord. BL2007-1 §§ 2, 3, 2007; Ord. BL2007-1312 § 1, 2007; Ord. BL2017-580 § 1, 2017; Ord. BL2017-788 § 1, 2017; Amdt. 1 to Ord. BL2017-788 § 1, 2017.

Dr. Martin L. King Jr. Blvd to the intersection of 11th Ave. N. Continuing along the centerline of 11th Ave N. to the intersection of Broadway centerline. Continuing along Broadway to 10th Avenue N., to the northern boundary of parcels along Broadway to 9th Avenue N; along 9th Avenue N to Union Street; with the centerline of Union Street to 6th Avenue N; centerline of 6th Avenue N to Charlotte Avenue; centerline of Charlotte Avenue to 3rd Avenue N; centerline of 3rd Avenue N to James Robertson Parkway; centerline of James Robertson Parkway to the Cumberland River; plus the addition of the two parcels of property located between 9th Avenue N. and YMCA Way, being Parcel Nos. 09305016100 and 09305016000. (Ord. BL2025-846 § 1, 2025)

2.177.020 Purposes and mission.

A. The metropolitan council hereby finds and declares that the establishment of the Downtown CBID will promote the successful and continued revitalization of downtown Nashville, thereby furthering the health, safety, morals, and general economic welfare of Metropolitan Nashville and Davidson County.

B. The purpose and mission of this CBID is hereby declared to be:

To undertake and provide an enhanced level of programs and services not provided by the metropolitan government which will help maintain the CBID area of downtown Nashville as a clean, safe, and vibrant place to work, live, shop, play, and invest. (Ord. BL2025-846 § 1, 2025)

2.177.030 Liberal construction.

This ordinance, being necessary to secure and preserve the public health, safety, convenience and welfare, shall be liberally construed to effectuate its purposes. (Ord. BL2025-846 § 1, 2025)

2.177.040 Definitions.

A. As used in this ordinance, unless a contrary meaning clearly appears:

1. "Assessed value" means value as assessed for municipal tax purposes.

2. "District" or "Downtown Central Business Improvement District" or "Downtown CBID" means the central business improvement district created by this ordinance.

3. "District Management Corporation" means the board or organization created or the organization appointed to act as an advisory board for the purpose of making and carrying out recommendations for the use of special assessment revenues, and for the purpose of administering activities within and for the district and the provision of services and projects within and for the district.

4. "Owner" means the record owner of real property in fee or a representative of such owner duly authorized to act for and on behalf of said owner. (Ord. BL2025-846 § 1, 2025)

2.177.050 District management corporation.

A. There is hereby authorized a District Management Corporation to be chartered pursuant to the provisions of the Nonprofit Corporation Act of Tennessee for the purpose of administering the special assessment revenues and the activities within and for the Downtown CBID, the making of improvements within and for the Downtown CBID, and the provision of services and projects within and for the Downtown CBID.

B. The district management corporation shall be governed by a board of directors consisting of at least fifteen members but no more than twenty members. Three members shall be appointed as provided in subsection C below. The Mayor of the Metropolitan Government of Nashville and Davidson County shall appoint a member for a three-year term, after which the board will request that the mayor renew the three-year appointment. The board of directors shall select the remaining members to serve staggered, three-year terms, limited to serving two consecutive full terms. Members selected by the board of directors or appointed by the mayor shall be subject to confirmation by the metropolitan council.

1. From and after the effective date of this section, fifteen members shall either be property owners or have offices within the district. At least three of these fifteen members shall be large property owners (defined as owners of major hotel properties or commercial office buildings in the district), and at least three shall be small property owners (defined as owners of commercial properties other than major hotels or office buildings in the district). Additionally, at least two members shall be commercial tenants (defined as any lessees of commercial property within the district), and at least two members shall be residential condominium owners who reside in the district.

2. From and after January 1, 2027, four members shall be property owners or have offices within the areas described in section 2.177.010.C. One member shall be large property owner (defined as an owner of a major hotel property or commercial office building in the district), one member shall be small property owner (defined as an owner of commercial property other than major hotel or office buildings in the district), one member shall be a commercial tenant (defined as any

lessee of commercial property within the district), and one member shall be a member at large from within the boundaries.

3. The seats created by this subsection B. shall be filled at an annual meeting upon nomination by the outgoing board members and confirmation by a majority of the owners of real property in the district voting in the election. A property owner may vote by proxy vote.

C. The Speaker of the Senate of the State of Tennessee shall appoint the senator whose senate district includes the majority of the area contained within the Downtown CBID to serve as an ex officio member and the Speaker of the House of Representatives of the State of Tennessee shall appoint the representative whose house district includes the majority of the area contained within the Downtown CBID as an ex officio member. The ex officio members shall serve for the term for which they are elected and shall not be counted in determining the presence of a quorum.

D. Any member(s) of the Council of the Metropolitan Government of Nashville and Davidson County whose council district(s) includes any of the area contained within the CBID shall serve as an ex officio member.

E. Vacancies on the board for elected members shall be filled by the remaining board members present and voting to fill the vacancy. (Amdt. 2 to Ord. BL2025-846 § 1, 2025;Ord. BL2025-846 § 1, 2025)

2.177.060 District management corporation powers.

A. In furtherance and not in limitation of the general powers conferred upon a CBID by Chapter 84 of Title 7 of the Tennessee Code Annotated, and in keeping with the purposes of the CBID set forth herein, it is expressly provided that the district management corporation shall have the following powers which shall be exercised at the discretion of the district management corporation acting through its board of directors, as follows:

1. Maintenance and cleaning services;

2. Safety and hospitality services;

3. Streetscape and landscape programs;

4. Communications and marketing, district advocacy, and district management;

5. To provide services for the improvement and operation of the district, to supplement those provided by the metropolitan government, as follows:

a. Promotion and marketing;

b. Advertising;

c. Health and sanitation;

d. Public safety;

e. Elimination of problems related to traffic and parking;

f. Security services;

g. Recreation;

h. Cultural enhancements;

i. Activities in support of business or residential recruitment, retention, and management development;

j. Aesthetic improvements, including the decoration, restoration, or renovation of any public space or of building facades and exteriors in public view which confer a public benefit;

k. Professional management, planning, and promotion of the district;

l. Consulting with respect to planning, management, and development activities;

m. Furnishing of music in any public place;

n. Design assistance; and

o. Such other services as are authorized by Tennessee Code Annotated § 7-84-520.

6. To enter into contracts and agreements with other persons or entities.

7. To hire employees or retain agents, engineers, architects, planners, consultants, attorneys, and accountants.

8. To acquire, construct, install, and operate public improvements contemplated by this Ordinance and all property rights or interests incidental or appurtenant thereto, and to dispose of real and personal property and any interest therein including leases and easements in connection therewith.

9. To manage, control, and supervise:

a. All the business and affairs of the district.

b. The acquisition, construction, and installation and operation of public improvements within the district;

c. The operation of district services therein.

10. To construct and install improvements across and along any public street, alley, highway, stream of water, or water course in accordance with state and local laws, rules, or regulations.

11. To construct and operate childcare facilities.

12. To accept, administer, and comply with the conditions and requirements respecting any appropriation of funds or any gift, grant or donation of property or money to the Central Business Improvement District; and

13. To exercise all rights and powers necessary or incidental to or implied from the specific powers granted in this section.

B. All services to the district listed above shall be provided by the district management corporation as a service to and in support of the metropolitan government and such services are to be paid for out of revenues from the special assessment. Revenues from special assessments shall be used to supplement and not to pay for the same level of services provided by the metropolitan

government within the district as are provided throughout the urban services district. In no event will the level of urban services provided to the district be decreased as a result of the enhanced level of services provided through the special assessment revenues; provided, however, the level of urban services may be decreased for other reasons. In carrying out these responsibilities, the district management corporation must comply with all applicable provisions of laws, including Chapter 84 of Title 7 of Tennessee Code Annotated, all city resolutions and ordinances and all regulations lawfully imposed by the state auditor or other state agencies. (Ord. BL2025-846 § 1, 2025)

2.177.062 District annual reporting.

The district management corporation of the Downtown CBID shall be required to prepare and submit an annual Human Rights and Public Safety Report to the metropolitan council. The report should be submitted no later than March 31 of each calendar year, documenting interactions between private security personnel contracted by or affiliated with the district management corporation and individuals experiencing homelessness within the geographic boundaries of the District. The district management corporation must also present the annual report to the public health and safety committee no later than April 30.

The report shall include, but is not limited to, the following components:

1. Quantitative Data:

a. Total number of documented interactions between CBID-affiliated security officers and unhoused individuals.

b. Number of incidents resulting in use of force, detainment, or law enforcement referral.

c. Number of complaints or grievances filed against CBID-affiliated security personnel involving individuals experiencing homelessness.

d. Number of reported injuries or medical responses following security interactions.

e. Number of referrals made to social services or outreach teams.

f. Number and types of trespass warnings or exclusions issued to unhoused individuals.

2. Qualitative Data:

a. Summary of the security company's use-of-force policy, de-escalation training, and homeless engagement protocols.

b. Summary of disciplinary actions taken in response to misconduct complaints, if any.

c. Case studies or narratives describing representative interactions, both positive and negative.

d. Description of training provided to security personnel regarding the humane treatment of homeless individuals, trauma-informed care, or mental health crises.

e. Summary of any community engagement efforts or public forums held to address safety and rights concerns.

This report shall be made publicly available and posted on the district management corporation website. (Amdt. 4 to Ord. BL2025-846 § 1, 2025)

2.177.064 District grievance procedures.

To ensure accountability, transparency, and protection of individual rights in all interactions between private security personnel affiliated with the Downtown CBID and members of the public, the district management corporation shall establish internal procedures to process grievances by the public. The procedures should include a grievance form publicly available on the district management corporation website that can be submitted in writing or online and may be submitted anonymously. The procedures should require maintaining detailed records of any grievance and the resolution of the grievance. All grievances shall be publicly available. The district management corporation shall be required to report to the metropolitan council the grievance procedures that are established pursuant to the section no later than four months after the enactment of this section. (Amdt. 5 to Ord. BL2025-846 § 1, 2025)

2.177.070 Annual budget.

A. The district management corporation shall annually, on or before April 15, submit to the metropolitan council a financial report and a written report of its activities for the preceding year together with a proposed budget for the next year. The annual budget shall include a projection of revenues from the special assessment and a projection of expenditures for projects, services and activities of the district management corporation and shall be reviewed and approved by the metropolitan council, or if not approved shall be returned to the board of directors for revision and resubmission until the metropolitan council shall approve the annual budget.

B. The district management corporation shall report no less than quarterly to the Tourism and Convention Commission and Metro Finance Department on financial sources and uses of all fees and assessments, including funds resulting from management, operation, or other use of Metro public assets, including but not limited to Metro parking garages. (Amdts. 1 and 3 to Ord. BL2025-846 § 1, 2025; Ord. BL2025-846 § 1, 2025)

2.177.080 Estimated costs and rate of levy; special assessment procedure.

A. The estimated cost of the initially proposed improvements, services projects and other permitted uses of special assessment revenues is $8,014,963.

B. The initial rate of levy of the special assessment for the Downtown CBID, based on December 31, 2024, records of the metropolitan assessor of property, shall be $0.001294 per dollar of assessed property value. Such rate of levy shall continue in force until changed by the metropolitan council in accordance herewith. A change in the rate of levy of such special assessment may be initiated only by a resolution from the district management corporation. Upon receipt of this resolution from the district management corporation, the metropolitan council must hold a public hearing on whether there should be a change in the rate of levy for the special assessment, and no such change shall become effective unless and until it is approved by an ordinance enacted by the metropolitan council.

C. Beginning in 2025, special assessments shall be levied against all taxable real property within the Downtown CBID pursuant to a special assessment roll of all owners of real property within the district as shown in the records of the Assessor of Property for the Metropolitan Government of Nashville and Davidson County, including owners of leaseholds on property owned by the Industrial Development Board of the Metropolitan Government of Nashville and Davidson County.

D. Notice of the special assessment shall be issued simultaneously with tax notices for regular Metropolitan Nashville real property taxes, and revenues from the special assessment shall be collected by the metropolitan management corporation to the extent it is empowered by this ordinance.

E. Special assessments shall be imposed and collected annually as set forth hereinabove and changes in the rate or additions to the rate of the special assessment may be made only on an annual basis and only in accordance with the procedure set forth in section 2.177.080(B).

F. Penalty and interest in the amount permitted by state law shall be added to any such assessment or installment thereof not paid on or before the date prescribed by the Metropolitan Government of Nashville and Davidson County. (Ord. BL2025-846 § 1, 2025)

2.177.090 Dissolution of the district management corporation.

The metropolitan council may dissolve the Downtown CBID upon receipt of a written petition filed either: (a) by the owners of seventy-five percent of the assessed value of the taxable real property in the Downtown CBID based on the most recent certified city property tax rolls; or (b) by fifty percent of the owners of record within the Downtown CBID.

The Downtown CBID may not be dissolved if the metropolitan government has outstanding any bonds, notes, or other obligations payable solely from the special assessment revenues levied on the real property within the Downtown CBID in which case such dissolution may occur only at such time as such bonded indebtedness has been repaid in full or the metropolitan government pledges to the payment of such indebtedness its full faith and credit and unlimited taxing power. Upon dissolution of the Downtown CBID, any unencumbered assessment proceeds remaining under the control of the Downtown CBID shall be disbursed to the owners of the Downtown CBID real property pro rata based upon the amounts of the respective assessments. (Ord. BL2025-846 § 1, 2025)

Chapter 2.178

SOUTH NASHVILLE CENTRAL BUSINESS IMPROVEMENT DISTRICT (SONA CBID)

Sections:

2.178.010	**District created, boundary.**
2.178.020	**Purposes and mission.**
2.178.030	**Liberal construction.**
2.178.040	**Definitions.**
2.178.050	**District management corporation.**
2.178.060	**District management corporation powers.**
2.178.070	**Annual budget.**
2.178.080	**Estimated costs and rate of levy; special assessment procedure.**
2.178.090	**Dissolution of the district management corporation.**

2.178.010 District created, boundary.

In accordance with the provisions of and established pursuant to Tennessee Code Annotated § 7-84-501, et seq., there is hereby created a South Nashville Central Business Improvement District (SONA CBID) which shall include all properties within that area of the city bounded and generally described as follows:

Tract No. 1:

Beginning at the east end of Target Drive, being a northwesterly corner of a parcel known as Map 174, Parcel 23; thence northeasterly along the northwesterly line of a parcel known as Map 174, Parcel 23 to the westerly right-of-way of Interstate 24 East; thence southeasterly along the westerly margin of the right-of-way of Interstate 24 East to the westerly margin of the exit ramp to Hickory Hollow Parkway; thence along the westerly margin of the exit ramp to Hickory Hollow Parkway, the southern margin of the entrance ramp to Interstate 24 East, and the westerly margin of the right-of-way for Interstate 24 East to the north margin of Old Franklin Road, being the southeasterly corner of Map 174, Parcel 213; thence westerly, along the north margin of Old Franklin Road to the southwest corner of a parcel known as Map 174, Parcel 24.01; thence along the westerly line of Map 174, Parcel 24.01 to the northwest corner of said Parcel; thence west and south along the north and west parcel lines of a parcel known as Map 174, Parcel 182, to the north margin of Old Franklin Road; thence west along the north margin of Old Franklin Road to the intersection of the east margin of Cane Ridge Parkway as shown on the Plat of Century Farms, of record as Instrument No. 20150917-0094651, Register's Office for Davidson County, Tennessee; thence along the east and north margin of Cane Ridge Parkway as disclosed by said Plat; thence southeasterly, along the west margin of Cane Ridge Parkway to a northeasterly corner of Lot 1, as shown on said Plat, and being a parcel known as Map 174, Parcel 232; thence along the northerly, westerly and southerly lines of said Lot 1 to a southeasterly corner of said Lot 1 and the northeasterly corner of Lot 2 as shown on said Plat, being a parcel known as Map 174, Parcel 233, said corner is also located on the westerly margin of Cane Ridge Parkway; thence along the westerly margin of Cane Ridge Parkway, to the north line of Old Franklin Road; thence westerly, along the north margin of Old Franklin Road to the intersection with the east margin of Cane Ridge Road; thence northwesterly along the easterly margin of Cane Ridge Road and along the southwesterly line of a parcel known as Map 174, Parcel 218, to the southwestern corner of Map 174, Parcel 219; thence along the east and north parcel line of a parcel known as Map 174, Parcel 100 to the intersection with the east line of a parcel known as Map 174, Parcel 93; thence along the east and north parcel lines of a parcel known as Map 174, Parcel 93 to the intersection with the east line of a parcel known as Map 174, Parcel 57; thence along the east and north lines of a parcel known as Map 174, Parcel 57, to the east boundary of Cane Ridge Road; thence along the east boundary of Cane Ridge Road, along the westerly parcel line of properties known as Map 174, Parcels 59, 21, 62 and 61, to the southwest corner of a parcel known as Map 163, Parcel 341; thence along the east margin of Cane Ridge Road and continuing along the west parcel line of a parcel known as Map 163, Parcel 341, to the northwest corner of said Parcel 341; thence easterly along the north property line of said Parcel 341 to the intersection with the northwesterly parcel line of a parcel known as Map 174, Parcel 23; thence along the west parcel line of Parcel 23 to the southern margin of Target Drive, being the Point of Beginning.

Tract No. 2:

Being the property known as Map 174, Parcel 38; bounded on the northwest by Old Franklin Road; on the northeast by the westerly margin of the right-of-way of Interstate 24 East; on the south and west by a parcel known as Map 174, Parcel 39.

The above described area contains properties identified as Map 163, Parcel 341; and Map 174, Parcels 21, 23, 24.01, 38, 59, 61, 62, 213, 218, 219, and 233.

Tract No. 3:

Land in Davidson County, Tennessee being Lot No. 1 on the Plan of J. T. Morton Subdivision, as of record in Pat Book 6200, page 978, Register's Office for said County, to which plan reference is hereby made for a more complete description of said lot.

Less and except the Right of Way as set forth in Order of Condemnation and Possession recorded January 11, 2018, in Instrument No. 20180119-0005953, in the Register's Office for Davidson County, Tennessee.

Being the same property conveyed to Century Farms, LLC by deed from Daniel Lee and wife, Amanda Lee, dated March 21, 2019 and recorded March 25, 2019 as Instrument No. 20190325-0026982, Register's Office for Davidson County, Tennessee. (Ord. BL2022-1380 § 1, 2022; Ord. BL2018-1140 § 1, 2018)

2.178.020 Purposes and mission.

A. The metropolitan council hereby finds and declares that the establishment of a SONA CBID will promote the successful revitalization and modernization of the business district within South Nashville, thereby furthering the health, safety, and general economic welfare of Metropolitan Nashville and Davidson County.

B. The purpose and mission of this SONA CBID is hereby declared to be: To undertake and provide an enhanced level of programs and services not provided by the metropolitan government which will help maintain the central business district of South Nashville as a clean, safe, and vibrant place to work, live, shop and play. This should include but not be limited to funding the necessary roadway improvements and maintenance as well as any appurtenances designed to improve access and overall traffic flow, and funding and maintaining other public improvements and appurtenances within the district related to water and sewer infrastructure as well as the development of a public greenway. (Ord. BL2018-1140 § 1, 2018)

2.178.030 Liberal construction.

This ordinance, being necessary to secure and preserve the public health, safety, convenience and welfare, shall be liberally construed to effectuate its purposes. (Ord. BL2018-1140 § 1, 2018)

2.178.040 Definitions.

A. As used in this ordinance, unless a contrary meaning clearly appears:

1. "Assessed value" means value as assessed for municipal tax purposes.

2. "District" or "South Nashville Central Business Improvement District" or "South Nashville CBID" or "SONA CBID" means the central business improvement district created by this ordinance.

3. "District management corporation" means the board or organization created or organization appointed to act as an advisory board for the purpose of making and carrying out recommendations for the use of special assessment revenues, and for the purpose of administering activities within and for the district, and the provision of services and projects within the district.

4. "Initiating petition" means the petition filed in the office of the metropolitan clerk requesting the establishment of the SONA CBID.

5. "Owner" means the record owner of real property in fee or a representative of such owner duly authorized to act for and on behalf of said owner. (Ord. BL2018-1140 § 1, 2018)

2.178.050 District management corporation.

A. There is hereby authorized a district management corporation to be chartered pursuant to the provisions of the Nonprofit Corporation Act of Tennessee for the purpose of administering the special assessment revenues and the activities within the district, the making of improvements within the district, and the provision of services and projects within and for the district.

B. The district management corporation shall be governed by a board of directors consisting of at least seven members. At least three members shall be appointed as provided in subsection C. below. The Mayor of the Metropolitan Government of Nashville and Davidson County shall appoint two of the seven members who shall serve an initial four-year term, after which the board will request that the mayor renew the four-year appointments. The property owners within the district shall appoint the remaining two members who shall serve five-year terms and these two members terms shall be extended beyond the five-year term if debt is issued and has not been repaid. These two members shall be principles of property owners or companies owning property within the district. At the end of these initial terms, these seats shall then be filled at an annual meeting upon nomination by the outgoing board members.

C. The Speaker of the Senate of the State of Tennessee shall appoint the senator whose senate district includes the majority of the area contained within the SONA CBID to serve as an ex officio member and the Speaker of the House of Representatives of the State of Tennessee shall appoint the representative whose house district includes the majority of the area contained within the SONA CBID as an ex officio member. In addition, any member of council whose district includes

any of the area contained within the SONA CBID shall serve as an ex officio member. The ex officio members shall serve for the term for which they are elected and shall not be counted in determining the presence of a quorum.

D. Vacancies on the board for elected members shall be filled by the remaining board members present and voting to fill the vacancy. (Ord. BL2018-1140 § 1, 2018)

2.178.060 District management corporation powers.

A. In furtherance of and not in limitation to the general powers conferred upon a CBID by Chapter 84 of Title 7 of the Tennessee Code Annotated and in keeping with the purposes of the SONA CBID set forth herein it is expressly provided that the district management corporation shall have the following powers which shall be exercised at the discretion of the district management corporation acting through its board of directors as follows:

1. To acquire, construct or maintain parking facilities;

2. To acquire, construct or maintain public improvements;

3. To acquire real property or an interest therein in connection with a public improvement;

4. To provide services for the improvement and operation of the district to supplement those provided by the metropolitan government, as follows:

a. Promotion and marketing;

b. Advertising;

c. Heath and sanitation;

d. Public safety;

e. Elimination of problems related to traffic and parking;

f. Security services;

g. Recreation;

h. Cultural enhancements;

i. Activities in support of business or residential recruitment or retention;

j. Aesthetic improvements;

k. Professional management, planning and promotion of the district;

l. Consulting with respect to planning, management and development activities;

m. Furnishing of music at any public place;

n. Design assistance; and

o. Such other services as authorized by Tenn. Code Ann. § 7-84-520.

5. To enter into contracts and agreements with other persons or entities;

6. To hire employees or retain agents, engineers, architects, planners, consultants, attorneys and accountants;

7. To acquire, construct, install and operate public improvements contemplated by this ordinance and all property rights or interests incidental or appurtenant thereto, and to dispose of all real and personal property and any interest therein including leases and easements in connection therewith;

8. To manage, control and supervise:

a. All the business and affairs of the district;

b. The acquisition, construction and installation and operation of public improvements within the district; and,

c. The operation of district services therein.

9. To the extent permitted by law, to borrow money and issue bonds, notes or other obligations for the purpose of paying the costs of public improvements made pursuant to the establishment ordinance, or the refunding or refinancing of any such bonds, notes or other obligations issued pursuant to the authority in Tenn. Code Ann. § 7-84-518.

10. To construct and install improvements across and along any public street, alley, highway, stream of water or water course in accordance with state and local laws, rules or regulations; and,

11. To exercise all rights and powers necessary or incidental to or implied from the specific powers granted herein or those granted in Tenn. Code Ann. § 7-84-520.

B. All services to the district listed above shall be provided by the district management corporation as a service to and in support of the metropolitan government and such services are to be paid for out of the revenues from the special assessment. Revenues from special assessments shall be used to supplement and not to pay for the same level of services provided by the metropolitan government within the district as are provided throughout the general services district. In no event will the level of services provided to the district be decreased as a result of the enhanced level of services.

C. Initial improvements: The following improvement programs are examples of work authorized to be undertaken within the district during its first year of operation:

1. Completion of Cane Ridge Parkway and construction of IKEA Parkway and Century Farms Parkway;

2. Provide complete engineering plans to Metro/TDOT for improvements to Exit 60 of Interstate I-24 and construction of the roadways identified above;

3. Improvements to Cane Ride Road; and,

4. Relocating 4 NES circuits. (Ord. BL2018-1140 § 1, 2018)

2.178.070 Annual budget.

The district management corporation shall annually submit to the metropolitan council a financial report and a written report of its activities for the preceding year together with a proposed budget for the next year. The annual budget shall include a projection of revenues from the special assessment and a projection of expenditures for projects, services and activities of the district management corporation and shall be reviewed and approved by the metropolitan council, or if not approved shall be returned to the board for revision and resubmission until the council shall approve the annual budget. (Ord. BL2018-1140 § 1, 2018)

2.178.080 Estimated costs and rate of levy; special assessment procedure.

A. The estimated costs of the initially proposed improvements, services and projects are approximately $10.948 million during the first year and $28.5 million over the 20-year term.

B. The rate of levy of the special assessment for the SONA CBID shall be increased, from the previously established rate, to $1.00 per $100.00 of assessed value of real property beginning in calendar year 2019. Such rate of levy shall continue in full force until changed by the metropolitan council in accordance herewith and no change shall occur if debt is secured with the special assessment revenue. A change in the rate of levy may be initiated only by a resolution of the district management corporation requesting that the rate be changed. Further, this rate must be approved in an election held by the district management corporation by not less than a majority in number of owners of real property in the district voting in said election. In addition, the assessed value of the property in the district owned by all of the persons voting affirmatively must equal or exceed at least two-thirds of the assessed value of the property in the district owned by all of the persons voting. Upon receipt of this resolution from the district management corporation, the metropolitan council must hold a public hearing on whether there should be a change in the rate of levy for the special assessment.

C. Beginning in 2018, special assessments shall be levied against all taxable real property within the SONA CBID pursuant to a special assessment roll of all owners of real property within the district as shown in the records of the Assessor of Property for the Metropolitan Government of Nashville and Davidson County.

D. Notice of the special assessment shall be issued simultaneously with tax notices for regular Metropolitan Nashville real property taxes, and revenues from special assessment shall be collected by the metropolitan trustee and placed into a segregated account subject to the direction of the council and the district management corporation.

E. Special assessments shall be imposed and collected annually as set forth hereinabove. Changes in the rate or additions to the rate for the assessment may be made only annually pursuant to the process referenced in Section 2.178.080(B).

F. Penalty and interest in the amount permitted by state law shall be added to any such assessment or installment thereof not paid on or before the date prescribed by the Metropolitan Government of Nashville and Davidson County. (Ord. BL2019-1800 § 1, 2019; Ord. BL2018-1140 § 1, 2018)

2.178.090 Dissolution of the district management corporation.

The district shall be dissolved without further action from the metropolitan council on December 31, 2037 assuming there is no outstanding debt, bonds, notes or other obligations payable solely by special assessment revenue levied on real property within the district. However, the district shall not be dissolved if there is outstanding debt or if prior to that date the metropolitan council by ordinance determines that the district should be continued and a petition that satisfies the requirements of the Central Business Improvement Act, Tenn. Code Ann. § 7-84-501 et seq. is filed requesting that the district continue. Upon dissolution of the district, any unencumbered assessment proceeds remaining under the control of the district shall be disbursed to the owners of district real property pro rata based upon the amounts of the respective assessments.

The metropolitan council may dissolve the SONA CBID upon receipt of a written petition filed by the owners of either seventy-five percent of the assessed value of the property in the district based on the most recent certified city property tax rolls or fifty percent of the owners of record within the district. (Ord. BL2018-1140 § 1, 2018)

Chapter 2.179

MIDTOWN CENTRAL BUSINESS IMPROVEMENT DISTRICT (MBID)

Sections:

2.179.010	**Definitions.**
2.179.020	**District created; boundary.**
2.179.030	**Purposes and mission.**
2.179.040	**Liberal construction.**
2.179.050	**District management corporation.**
2.179.060	**District management corporation powers.**
2.179.070	**Annual budget.**
2.179.080	**Estimated costs and rate of levy; special assessment procedure.**
2.179.090	**Dissolution of the district management corporation.**
2.179.100	**District annual reporting.**
2.179.110	**District feedback procedures.**

2.179.010 Definitions.

A. As used in this ordinance, unless a contrary meaning clearly appears:

1. "Assessed value" means value as assessed for municipal tax purposes.

2. "District" or "midtown central business improvement district" or "MBID" means the central business improvement district created by this ordinance.

3. "District management corporation" means the board or organization created or the organization appointed to act as an advisory board for the purpose of making and carrying out recommendations for the use of special assessment revenues, and for the purpose of administering activities within and for the district and the provision of services and projects within and for the district.

4. "Owner" means the record owner of real property in fee or a representative of such owner duly authorized to act for and on behalf of said owner. (Ord. BL2025-1113 § 1, 2025)

2.179.020 District created; boundary.

A. In accordance with the provisions of and established pursuant to Tennessee Code Annotated § 7-84-501, et seq., there is hereby created a midtown central business improvement district, which shall include all properties within that area of the city bounded and generally described as follows:

Commencing at the intersection of Division Street and I 40 going along the centerline of Division Street, N 81 deg 47' 51"W, 806.60 feet. Continuing down the centerline Division Street, N 83 deg 07' 40" W 646.14 feet to the southernly portion of Music Square roundabout (AKA Division St). Thence going southwest at the Music Square roundabout along the center line of Music Square East, S 09 deg 46' 11'W 192.59 feet. Thence westerly N 85 deg 29' 17" W 24.39 feet. Continuing west at southernly boundary of APN (assessor's parcel number) 09313012900 N 82 deg 38' 53"W 152.03 feet to the centerline of Alley 440. Thence Northerly along the center line of alley #440, N 06 deg 46' 44"East 193.88 feet. Continuing along the center line of Division Street in Westerly direction North 85 deg 06' 30" West 170.94 feet to the intersection of Music Sq West. Thence turning southerly down the centerline of Music Square West, S 09 deg 30' 18"W 339.15 feet. Thence Westerly along the southern line of APN 092160M90000CO, N 83 deg 01' 51" W 184.99 feet to centerline of alley 442. Continuing Northward along the center line of alley #442, N 07deg 44' 40" E 65.94 feet. Thence going Southwest to the corner of APN 09216034300, S 77 deg 14' 28" W 12.56 feet. Continuing along the southern border of APN 09216034300, S 58 deg 32' 35" W 75.78 feet. Thence, along the eastern and southern portions of 09216034300, the following three calls, S 36 deg 52'01"E 3.93 feet, S 07 deg 07'31" E 12.9 feet N 07 deg 07'31"E 130 feet to the centerline of 18th Avenue South. Thence Southeasterly along the centerline of 18th Avenue South, S 08 deg 01' 58"W 140.69 feet. Leaving the centerline of 18th Avenue South and bisecting APN 09216033700 North 81 deg 48'18"West 190.86 feet to the centerline of alley #444. Thence, thence southwesterly along the centerline of alley #444, S 08 deg 37' 46"W 755.16 feet. Thence westerly along the southern border of APN 09216043800, N 82 deg 38' 44"W 142 feet. Thence westerly to easterly boundary of APN 09216026700, N 83 deg 45' 49" W 60.20 feet. Then, southerly along the eastern edge of 19th Ave. S, S 07 deg 33' 06"W 237.2 feet to the northern edge of Adelicia St. Thence westerly along the north margin of Adelicia Street N, 84 deg 13' 28"W 536.07 feet to the centerline of 20th Avenue South. Thence south along the centerline of 20th Avenue South, S 07 deg 43' 03" W 385.26 feet to the centerline of Grand Ave. Then westerly along the Centerline of Grand Avenue, N 82 deg 32' 54" W 157.50 feet. Thence south along the centerline of alley 447, S 06 deg 19' 21"W 529.84 feet to the southern edge of Scarritt Pl. Thence easterly along the northern boundary of APN 10404003400, S 82 deg 51' 50" E 245.77 feet. Thence moving south along that parcel's easterly boundary S 08 deg 50' 35"W 158.04 feet. Continuing along its

southern, N 82 deg 28' 21"W 450.72 Feet to the centerline of 21st Avenue South. Thence, along its centerline, N 06 deg 36' 17"E 880.43 feet. Continuing along the centerline of 21st Avenue S, N 29 deg 50' 45"W 107.91 feet. Thence, northeasterly along Broadway, N 41 deg 05' 58"E 669.89 feet to its intersection with 20th Ave S. Thence North along the centerline of the 20th Avenue South, N 30 deg 47' 55' W 701.78 feet. Thence northeasterly along the southern boundary of West End Avenue, N 59 deg 28' 19"E 2171.06 feet to the intersection of 16th Ave N. Thence south along the centerline of the 16th Avenue South, S 26 deg 20' 47"E 421.37 feet. Then, easterly along the centerline of McGavock Street, N 62 deg 51' 54" E 1,077.58 feet. Thence south along the northern boundary of 14th Avenue South, S 28 deg 58' 18"E 1,366.08 feet to the point of beginning. (Ord. BL2025-1113 § 1, 2025)

2.179.030 Purposes and mission.

A. The metropolitan council hereby finds and declares that the establishment of the MBID will promote the successful and continued revitalization of the midtown area of Nashville, thereby furthering the health, safety, morals, and general economic welfare of Metropolitan Nashville and Davidson County.

B. The purpose and mission of the MBID is hereby declared to be: To undertake and provide an enhanced level of programs and services not provided by the metropolitan government which will help maintain the MBID area of Nashville as a clean, safe, and vibrant place to work, live, shop, play, and invest. (Ord. BL2025-1113 § 1, 2025)

2.179.040 Liberal construction.

This ordinance, being necessary to secure and preserve the public health, safety, convenience and welfare, shall be liberally construed to effectuate its purposes. (Ord. BL2025-1113 § 1, 2025)

2.179.050 District management corporation.

A. There is hereby authorized a district management corporation to be chartered pursuant to the provisions of the Nonprofit Corporation Act of Tennessee for the purpose of administering the special assessment revenues and the activities within and for the MBID, the making of improvements within and for the MBID, and the provision of services and projects within and for the MBID.

B. The district management corporation shall be governed by a board of directors consisting of not fewer than eleven and not more than twenty-one members. The exact number of members and the required quorum for meetings will be determined by the district management corporation bylaws. The members of the board shall serve staggered terms of not to exceed four years as determined by the board through the district management corporation bylaws, and shall be limited to two consecutive terms.

C. The Speaker of the Senate of the State of Tennessee shall appoint the senator whose senate district includes the majority of the area contained within the MBID to serve as an ex officio member and the Speaker of the House of Representatives of the State of Tennessee shall appoint the representative whose house district includes the majority of the area contained within the MBID as an ex officio member. Any member(s) of the metropolitan council whose council district(s) includes any of the area contained within the MBID shall also serve as an ex officio member. The ex officio members shall serve for the term for which they are elected and shall not be counted in determining the presence of a quorum.

D. At least one member must be representative of each of the following categories: one member shall be large property owner (defined as an owner of a major hotel property or commercial office building in the district), one member shall be small property owner (defined as an owner of commercial property other than major hotel or office buildings in the district), one member shall be a commercial tenant (defined as any lessee of commercial property within the district), one member shall be a resident property owner of the district, and one member shall be a residential tenant within the district.

E. A slate of initial members of the board shall be submitted by the midtown business improvement district steering committee for ratification by the owners of property present and voting at the initial annual meeting of the district management corporation.

F. Vacancies on the board due to resignation, other than for ex officio members, shall be filled by the remaining board members present and voting at the meeting at which the vacancies are to be filled. In the event of vacancies as a result of the expiration of terms, the board shall submit a slate of members to fill the vacancies for ratification at the annual meeting of the district management corporation. At the expiration of a term, a board member shall holdover as a member of the board until the vacancy is filled in accordance with this section.

G. Notwithstanding any provision in this chapter to the contrary, all members selected to the board of directors shall be subject to confirmation by the metropolitan council. Notice of the selection shall be provided in writing to the metropolitan clerk. If the

metropolitan council fails to act on a confirmation within sixty days of notice of the selection, the member shall be conclusively presumed approved by the metropolitan council. (Amdt. 1 to Ord. BL2025-1113 § 1, 2025; Ord. BL2025-1113 § 1, 2025)

2.179.060 District management corporation powers.

A. In furtherance and not in limitation of the general powers conferred upon a central business improvement district by Chapter 84 of Title 7 of the Tennessee Code Annotated, and in keeping with the purposes of the MBID set forth herein, it is expressly provided that the district management corporation shall have the following powers which shall be exercised at the discretion of the district management corporation acting through its board of directors, as follows:

1. Maintenance and cleaning services;

2. Safety and hospitality services;

3. Streetscape and landscape programs;

4. Communications and marketing, district advocacy, and district management;

5. To provide services for the improvement and operation of the district, to supplement those provided by the metropolitan government, as follows:

a. Promotion and marketing;

b. Advertising;

c. Health and sanitation;

d. Public safety;

e. Elimination of problems related to traffic and parking, taking into consideration the stated multimodal transportation goals and mission of the metropolitan government;

f. Security services, provided that such services only be provided by:

i. Unarmed safety ambassadors employed by the district management corporation,

ii. Extra-duty metropolitan police officers contracted through Section 2.44.210 of the metropolitan code of laws,

iii. Persons who have been issued a special police commission pursuant to Section 2.44.090 and Section 2.44.100 of the metropolitan code of laws, or

iv. Any other contract security company approved by resolution of the metropolitan council.

g. Recreation;

h. Cultural enhancements;

i. Activities in support of business or residential recruitment, retention, and management development;

j. Aesthetic improvements, including the decoration, restoration, or renovation of any public space or of building facades and exteriors in public view which confer a public benefit;

k. Professional management, planning, and promotion of the district;

l. Consulting with respect to planning, management, and development activities;

m. Furnishing of music in any public place;

n. Design assistance; and

o. Such other services as are authorized by Tennessee Code Annotated § 7-84-520.

6. To enter into contracts and agreements with other persons or entities.

7. To hire employees or retain agents, engineers, architects, planners, consultants, attorneys, and accountants.

8. To acquire, construct, install, and operate public improvements contemplated by this chapter and all property rights or interests incidental or appurtenant thereto, and to dispose of real and personal property and any interest therein including leases and easements in connection therewith.

9. To manage, control, and supervise:

a. All the business and affairs of the district.

b. The acquisition, construction, and installation and operation of public improvements within the district;

c. The operation of district services therein.

10. To construct and install improvements across and along any public street, alley, highway, stream of water, or water course in accordance with state and local laws, rules, or regulations.

11. To accept, administer, and comply with the conditions and requirements respecting any appropriation of funds or any gift, grant or donation of property or money to the MBID; and

12. To exercise all rights and powers necessary or incidental to or implied from the specific powers granted in this section.

B. All services to the district listed above shall be provided by the district management corporation as a service to and in support of the metropolitan government and such services are to be paid for out of revenues from the special assessment. Revenues from special assessments shall be used to supplement and not to pay for the same level of services provided by the metropolitan government within the district as are provided throughout the urban services district. In no event will the level of urban services provided to the district be decreased as a result of the enhanced level of services provided through the special assessment revenues; provided, however, the level of urban services may be decreased for other reasons. In carrying out these responsibilities, the district management corporation must comply with all applicable provisions of laws, including Chapter 84 of Title 7 of Tennessee Code Annotated, all city resolutions and ordinances and all regulations lawfully imposed by the

state auditor or other state agencies. (Amdt. 1 to Ord. BL2025-1113 § 1, 2025; Ord. BL2025-1113 § 1, 2025)

2.179.070 Annual budget.

A. The district management corporation shall annually, on or before April 15, submit to the metropolitan council a financial report and a written report of its activities for the preceding year together with a proposed budget for the next year. The annual budget shall include a projection of revenues from the special assessment and a projection of expenditures for projects, services and activities of the district management corporation and shall be reviewed and approved by the metropolitan council by resolution, or if not approved shall be returned to the board of directors for revision and resubmission until the metropolitan council shall approve the annual budget. If no action is taken by the metropolitan council within sixty days of submission, the annual budget shall be deemed approved. The review by the metropolitan council of the annual budget shall not prevent the district management corporation from continuing its operations under its existing budget. In no event shall any disapproval of the annual budget delay or prevent the levy, collection, and appropriation of the special assessments by the metropolitan government.

B. The district management corporation shall report no less than quarterly to the budget and finance committee of the metropolitan council and metropolitan government finance department on financial sources and uses of all fees and assessments, including funds resulting from management, operation, or other use of metropolitan government public assets. (Amdt. 1 to Ord. BL2025-1113 § 1, 2025; Ord. BL2025-1113 § 1, 2025)

2.179.080 Estimated costs and rate of levy; special assessment procedure.

A. The estimated cost of the initially proposed improvements, services projects and other permitted uses of special assessment revenues is $1,531,089.

B. The initial rate of levy of the special assessment for the MBID, based on December 31, 2025, records of the metropolitan assessor of property, shall be $0.001561 per dollar of assessed property value. Such rate of levy shall continue in force until changed by the metropolitan council in accordance herewith. A change in the rate of levy of such special assessment may be initiated only by a resolution from the district management corporation. Upon receipt of this resolution from the district management corporation, the metropolitan council must hold a public hearing on whether there should be a change in the rate of levy for the special assessment, and no such change shall become effective unless and until it is approved by an ordinance enacted by the metropolitan council.

C. Beginning in 2026, special assessments shall be levied against all taxable real property within the MBID pursuant to a special assessment roll of all owners of real property within the district as shown in the records of the assessor of property for the Metropolitan Government of Nashville and Davidson County, including owners of leaseholds on property owned by the industrial development board of the Metropolitan Government of Nashville and Davidson County.

D. Notice of the special assessment shall be issued simultaneously with tax notices for regular Metropolitan Nashville real property taxes, and revenues from the special assessment shall be collected by the metropolitan trustee and placed into a segregated account subject to the direction of the metropolitan council and the district management corporation to the extent it is empowered by this ordinance.

E. Special assessments shall be imposed and collected annually as set forth hereinabove and changes in the rate or additions to the rate of the special assessment may be made only on an annual basis and only in accordance with the procedure set forth in Section 2.179.080.B.

F. Penalty and interest in the amount permitted by state law shall be added to any such assessment or installment thereof not paid on or before the date prescribed by the Metropolitan Government of Nashville and Davidson County. (Ord. BL2025-1113 § 1, 2025)

2.179.090 Dissolution of the district management corporation.

A. The metropolitan council may dissolve the MBID upon receipt of a written petition filed either: (a) by the owners of seventy-five percent of the assessed value of the taxable real property in the MBID based on the most recent certified city property tax rolls; or (b) by fifty percent of the owners of record within the MBID.

B. The MBID may not be dissolved if the metropolitan government has outstanding any bonds, notes, or other obligations payable solely from the special assessment revenues levied on the real property within the MBID in which case such dissolution may occur only at such time as such bonded indebtedness has been repaid in full or the metropolitan government pledges to the payment of such indebtedness its full faith and credit and unlimited taxing power. Upon dissolution of the MBID, any unencumbered assessment proceeds remaining under the control of the MBID shall be disbursed to the owners of the MBID real property pro

rata based upon the amounts of the respective assessments. (Ord. BL2025-1113 § 1, 2025)

2.179.100 District annual reporting.

A. The district management corporation shall be required to prepare and submit an annual interaction report to the metropolitan council. The report should be submitted no later than March 31 of each calendar year, documenting interactions between employees or contractors of the district management corporation performing public safety functions with individuals within the geographic boundaries of the District. The district management corporation must also present the annual report to the council public health and safety committee or similar committee no later than April 30.

B. The annual interaction report shall include, but is not limited to, the following components:

1. Quantitative data:

a. Total number of documented interactions.

b. Number of incidents resulting in use of force, detainment, or law enforcement referral.

c. Number of complaints or grievances filed against MBID-affiliated public safety personnel.

d. Number of reported injuries or medical responses following public safety interactions.

e. Number of referrals made to social services or outreach teams.

f. Number and types of trespass warnings or exclusions issued.

2. Qualitative data:

a. Summary of the district management corporation's, or any public safety contractor of the district management corporation, use-of-force policy, de-escalation training, and homeless engagement protocols.

b. Summary of disciplinary actions taken in response to misconduct complaints, if any.

c. Case studies or narratives describing representative interactions, both positive and negative.

d. Description of training regarding the humane treatment of homeless individuals, trauma-informed care, or mental health crises.

e. Summary of any community engagement efforts or public forums held to address safety and rights concerns.

C. The annual interaction report shall be made publicly available and posted on the district management corporation website. (Ord. BL2025-1113 § 1, 2025)

2.179.110 District feedback procedures.

To ensure accountability, transparency, and protection of individual rights in all interactions between public safety personnel affiliated with the MBID and members of the public, the district management corporation shall establish internal procedures to process feedback from the public. The procedures should include a feedback form publicly available on the district management corporation website that can be submitted in writing or online. The procedures should require maintaining detailed records of any feedback and the resolution of the feedback, if warranted. All feedback shall be publicly available. The district management corporation shall be required to report to the metropolitan council the feedback procedures that are established pursuant to the section no later than four months after the enactment of this chapter. (Ord. BL2025-1113 § 1, 2025)

Division VI. Other Programs and Policies

Chapter 2.188

REPORT AND DOCUMENT FILING POLICY

Sections:

2.188.010 **Persons and firms providing professional services to file final reports and recommendations with metropolitan clerk.**

2.188.010 Persons and firms providing professional services to file final reports and recommendations with metropolitan clerk.

Any person, firm, corporation or other entity employed by the metropolitan government to provide professional services, efficiency experts, rate consultants and other feasibility consultants, shall be required to file a copy of all final reports or recommendations presented to any department, agency, commission or board of the metropolitan government, including the office of the mayor, in the office of the metropolitan clerk. (Amdt. 1 to Ord. 89-1085, 2/20/90; Ord. 89-1085 § 1, 1990)

Chapter 2.190

ELECTRONIC FORMATTING AND ONLINE POSTING OF REPORTS

Sections:

2.190.010 Electronic formatting and online posting of reports.

2.190.010 Electronic formatting and online posting of reports.

A. Any and all reports required by the Metropolitan Code of Laws to be submitted to members of the metropolitan council shall be submitted in a searchable electronic format and simultaneously posted onto the Internet website of the submitting department, board or commission in a manner that will allow the general public to readily find and access such reports.

B. The internet website access to any report allowed by this section shall be for a period of no less than six months. Notwithstanding this, each submitting department, board and commission is encouraged to maintain online access to reports indefinitely with a reasonable, accessible archive function available to the public online.

C. The internet website access to reports allowed by this section is in addition to the public's access to the information through other electronic or print distribution of the information. (Ord. BL2016-462 § 1, 2016; Ord. BL2016-416 § 1, 2016)

Chapter 2.196

LOBBYIST REGISTRATION AND DISCLOSURE*

Sections:

2.196.010	**Purpose and intent.**
2.196.020	**Definitions.**
2.196.030	**Administration of provisions—Powers and duties.**
2.196.040	**Registration—Required when—Term—Fees.**
2.196.050	**Amending or withdrawing a lobbyist registration.**
2.196.060	**Annual lobbying and expense report requirements—Invitations and gifts.**
2.196.070	**Unlawful activities designated.**
2.196.080	**Lobbyist identification.**
2.196.090	**Lobbyist compensation.**
2.196.100	**Cooling off period.**
2.196.110	**Complaints procedures.**
2.196.120	**Hearing procedures.**
2.196.130	**Actions, penalties, sanctions, enforcement and appeals of decisions of the board.**

2.196.010 Purpose and intent.

It is the intent of the metropolitan council to promote, preserve and advance public trust and confidence in our system of government by holding others and ourselves to ethical and transparent standards. Public Officials, Lobbyists, and Clients of Lobbyists should be truthful and transparent in communications and interactions with each other and the public. No one should act in any manner that will undermine the public confidence and trust in our government or in our processes. In adopting this ordinance, the metropolitan council also recognizes the delicate balance sought in this lobbyist regulatory framework and the rights included in the First Amendment to the United States Constitution, particularly, the right of Freedom of Speech and the right to Petition the Government for a Redress of Grievances. (Ord. BL2020-147 § 1, 2020)

2.196.020 Definitions.

As used in this chapter, unless the context otherwise requires:

"Administrative action" means the taking of any recommendation, report or nonministerial action, the making of any decision or taking any action to postpone any action or decision, action of the mayor in approving or vetoing any ordinance or resolution, the promulgation of a rule and regulation, or any action of a quasi-legislative nature, by an official in the executive branch; however, "administration action" does not include ordinary and routine permitting, licensing, or compliance decisions by an official of the executive branch.

"Association" means a union, league, chamber of commerce, committee, club, or other membership organization.

"Board of ethical conduct" means the board established in Section 2.222.040, sometimes referred to as the "board".

"Business day" means every day, except Saturday, Sunday and holidays observed by the metropolitan government.

"Candidate for public office" means an individual who has made a formal announcement of candidacy or qualified under the law of this state to seek nomination for election or elections to any metropolitan government office, or has received contributions or made expenditures except for incidental expenditures to determine if one shall be a candidate, or has given consent for a campaign committee to receive contributions or make expenditures with a view to bringing about a nomination for election or the election to metropolitan government office, and any individual who has been nominated for appointment as an official in the legislative or executive branch.

"Clerk" means the metropolitan clerk.

"Client" means any person or entity that employs, retains or otherwise arranges for a lobbyist to engage in lobbying on behalf of the person or entity for compensation, sometimes referred to as "employer".

A. "Client" specifically includes any such person or entity notwithstanding the lobbyist's status as an employee, agent, contractor, subcontractor or other representative lobbying on behalf of such person or entity for compensation.

B. "Client" does not include the individual employees, officers, directors, or members of a corporation, labor organization, association, or membership organization other than the chief executive officer and the chief financial officer or comparable individuals within such corporation, labor organization, association, or membership organization.

C. A lobbying firm or law firm is not deemed to be the client of any lobbyist within the firm.

"Compensation" means any salary received or to be received by anyone acting as a lobbyist, whether in the form of a fee, salary, payment, reimbursement or other

*__Editor's note—__Ord. BL2020-147, § 1, passed August 4, 2020, effective Jan. 1, 2021, repealed Ch. 2.196, §§ 2.196.010—2.196.100, which pertained to similar subject matter and derived from Ord. 91-1484 §§ 1—10, passed 1991; Ord. 95-1329 § 3, passed 1995; Ord. BL2010-810 § 1, passed 2011; Ord. BL2010-821 § 1, passed 2011.

valuable consideration and any combination thereof. Compensation does not include the salary of an individual whose lobbying is incidental to regular employment.

"Contribution" shall not be construed to include the following:

A. Services, including expenses provided without compensation by a candidate or individuals volunteering a portion or all of their time, on behalf of a candidate or campaign committee;

B. Any news story, commentary or editorial distributed through the facilities of any broadcasting station, newspaper, magazine or other periodical publication, unless such facilities are owned wholly or in part, or controlled by any political party, political committee or candidate;

C. Nonpartisan activity designed to encourage individuals to vote or register to vote;

D. Any written, oral or electronically transmitted communication by any membership organization or corporation to its members or stockholders, if such membership organization or corporation is not organized primarily for the purpose of influencing the nomination for election, or election, of any person to public office; or

E. The use of real or personal property and the cost of invitations, food and beverages not exceeding one hundred dollars, voluntarily provided on an individual's residential premises for candidate related activities.

"Executive action" means the action of a commission, board, agency or other body in the metropolitan government that is not a part of the legislative or judicial branch.

"Expenditure" means any advance, conveyance, deposit, distribution, transfer of funds, loan, payment, pledge or subscription of money or anything of value, and any contract, agreement, promise or other obligation, whether or not legally enforceable, to make an expenditure; "expenditure" also includes any honorarium.

"Gift" to an officer or employee of the legislative branch of metro government means a payment, honorarium, subscription, loan, advance, forbearance, rendering or deposit of money or services, any of which are valued at fifty dollars or more, unless consideration of equal or greater value is received. A "gift" to an officer or employee of the executive branch of metro government means a payment, honorarium, subscription, loan, advance, forbearance, rendering or deposit of money or services, any of which are valued at twenty-five dollars or more, unless consideration of equal or greater value is received.

A. "Gift" does not include a political contribution otherwise reported as required by law, a commercially reasonable loan made in the ordinary course of business, or a gift received from a member of the person's immediate family or from a relative within the third degree of consanguinity of the person or of the person's spouse, or from the spouse of any such relative.

B. "Gift" does not include the waiver of a registration fee for a conference or educational seminar.

"Honorarium" means payment of money or anything of value for an appearance, speech or article, but "honorarium" does not include actual and necessary travel expenses which are not paid or reimbursed.

"Immediate family" means a spouse or minor child living in the household.

"Influencing" means promoting, supporting, modifying, opposing or delaying any legislative or administrative action by any means, including but not limited to the provision or use of information, statistics, studies or analyses. "Influencing" does not include the furnishing of information, statistics, studies or analyses requested by an official of the legislative or executive branch to such official, or the giving of testimony by an individual testifying at an official hearing conducted by officials of the legislative or executive branch.

"Legislative action" means introduction, sponsorship, debate voting or any other nonministerial official action or inaction on any ordinance, resolution, amendment, nomination, appointment, report or any other matter pending or proposed in a council committee or in the council.

"Lobby" or "lobbying" means to communicate, directly or indirectly, with any official in the legislative branch or executive branch, for the purpose of influencing any legislative action or administrative action.

"Lobby" does not mean any of the following communications:

A. with officials of the legislative or executive branches by an elected or appointed public official performing the duties of the office held;

B. from a duly licensed attorney at law acting in a representative capacity on behalf of a client appearing before an official of the executive branch for the purpose of determining or obtaining such person's legal rights or obligations in a contested case action, administrative proceeding, or rule making procedure;

C. from an editor or working member of the press, radio or television who, in the ordinary course of business, disseminates news or editorial comment to the general public;

D. by an incumbent or prospective contractor or vendor, or an employee of the contractor or vendor, while engaged in selling or marketing to metro, or any metro department, board, or commission, by demonstrating or describing goods or services to be provided or by inquiring about specifications, terms, conditions, timing,

or similar commercial information. However, the contractor or vendor, or employee of the contractor or vendor, shall be deemed to be a lobbyist if actively engaged in selling or marketing to an official in the executive branch or an official in the legislative branch whose duty it is to vote for, let out, overlook, or in any manner to superintend any work or any contract so marketed or sold;

E. with officials of the executive branch by any person to promote, oppose, or otherwise influence the outcome of a decision related to the issuance or award of a bond, grant, lease, loan, incentive or any component of an economic development incentive package; provided, that any person who is otherwise required to register as a lobbyist under the provisions of this chapter shall not be deemed to fall within this exception.

"Lobbying firm" means any firm, corporation, partnership or other business entity that supplies lobbying services to others for compensation. A lobbying firm is not considered an "employer" or "client" of any lobbyist within the firm for purposes of this chapter.

"Lobbyist" means any person who engages in lobbying for compensation.

"Ministerial action" means an action that a person performs in a prescribed manner in obedience to the mandate of legal authority, without regard to, or the exercise of, that person's own judgment upon the propriety of the action being taken. Ministerial action includes ordinary and routine permitting, licensing, or compliance decisions by an official of the executive branch.

"Official in the executive branch" means any member or employee of a commission, agency or other body in the executive branch who takes any administrative action.

"Official in the legislative branch" means any member, member-elect, any staff person or employee of the council.

"Person" means an individual, business entity, partnership, committee, association, corporation, labor organization, or any other organization or group of persons.

"Political contribution" or "Campaign contribution" means anything of value or any amount of money, in the form of an advance, conveyance, deposit, distribution, transfer of funds, loan, loan guaranty, personal funds of a candidate, payment, digital currency, gift, pledge, purchase of a ticket to a testimonial or similar fundraising event, or subscription of money or anything of value and any contract, agreement, promise or other obligation, whether or not legally enforceable, made for the purpose of influencing a measure or nomination for election or the election of any person for public office or for the purpose of defraying any expenses of an officeholder incurred in connection with the performance of the officeholder's duties, responsibilities, or constituent services; however, "political contribution" or "campaign contribution" does not mean volunteer services.

"Solicit" means to entreat, to implore, to ask, to attempt, or to try to obtain.

"Year" or "Annual" shall mean January 1st through December 31st. (Ord. BL2020-402 § 1, 2020; Ord. BL2020-147 § 1, 2020)

2.196.030 Administration of provisions—Powers and duties.

A. This chapter shall be administered by the metropolitan clerk. It shall be the duty of the metropolitan clerk:

1. To prescribe forms for statements, reports and other information required to be electronically filed by this chapter, and to furnish such forms to persons required to file such statements, reports and information;

2. To publish formal written policies and procedures or other information developed by the board of ethical conduct setting forth prescribed forms and procedures to assist persons required to file statements by this chapter and publish such policies, procedures, and information online;

3. To preserve such statements, reports and other information required to be filed by this chapter for a period of five years from date of receipt;

4. To develop a filing, coding and cross-indexing system by lobbyist name, by client, and by subject matter or any other way consistent with the purposes of this chapter;

5. To seek from the board of ethical conduct, issue, and publish, upon proper request from any lobbyist or public official, advisory opinions upon the requirements of this chapter. Such advisory opinions shall follow the procedures set forth in subsection 2.222.040.B;

6. To accept and file any information voluntarily supplied that exceeds the requirements of this chapter;

7. To make statements and other information filed with the clerk available for public inspection and copying during regular office hours, and to make copying facilities available at a charge calculated in the public records policy;

8. To prepare and publish such reports as may be deemed appropriate;

9. To promulgate any rules and regulations developed by the board of ethical conduct as may be appropriate for the administration of this chapter;

10. To make a list of all registered lobbyists prepared pursuant to this chapter available electronically. The metropolitan clerk shall update and make the list available prior to each meeting of the metropolitan council;

11. To electronically publish all information included in the annual reports filed by lobbyists; and

12. To develop, maintain, and periodically review and update internal written procedures for each critical process and task related to the administration of the lobbyist code.

B. It shall be the duty of the director of law to render opinions and give counsel to the metropolitan clerk and the board of ethical conduct regarding this chapter upon request and in a timely manner. (Ord. BL2020-402 § 2, 2020; Ord. BL2020-147 § 1, 2020)

2.196.040 Registration—Required when—Term—Fees.

A. 1. Every person qualifying as a lobbyist under this chapter shall register by filing an electronic form prescribed by the metropolitan clerk within five business days after accepting employment as a lobbyist, as defined in Section 2.196.020. A separate registration is required for each client a lobbyist represents.

2. Each year thereafter, the lobbyist shall register in the same manner if the lobbyist continues to engage in lobbying for that client no later than December 31st for the subsequent year.

3. For the purpose of registration, the lobbyist has been employed once the client and lobbyist have entered into an engagement or contract.

4. The filing shall include each of the following:

a. The lobbyist's name, mailing address, business address, home address, telephone number and email address.

b. The name, mailing address, business address, telephone number and email address for each the client of the lobbyist, and in the case of a corporation, association or governmental entity, the names of the individuals performing the functions of chief executive officer and chief financial officer.

c. A listing of the general categories of subject matters on which the registrant lobbies. The list of general categories shall be available from the metropolitan clerk.

d. Written proof of the lobbyist's authority to lobby on behalf of the client.

e. The name home address, and position of any member of the lobbyist's immediate family who is an official within the legislative or executive branch.

f. The extent of any direct or indirect business arrangement or partnership between the lobbyist and any candidate for public office or any official in the legislative or executive branch.

g. A sworn statement signed by the lobbyist that any employment agreement between a lobbyist and the client of a lobbyist is in writing, and the agreement does not contain any provision wherein the fee or a bonus to be paid to the lobbyist is contingent upon success of the lobbyist.

h. A current photograph of the lobbyist.

B. At the time of registration, the lobbyist shall pay an annual filing fee of one hundred dollars for each client for whom they are filing the registration.

C. A person engaged in a communication that is not considered lobbying as defined in Section 2.196.020 need not register as a lobbyist under this section.

D. All fees collected by the metropolitan clerk shall be paid into the general fund of the general services district.

E. The annual registration fee is non-refundable and non-transferable. (Ord. BL2024-290 § 1, 2024; Ord. BL2020-147 § 1, 2020)

2.196.050 Amending or withdrawing a lobbyist registration.

A. A lobbyist must amend or update their registration statement within five business days of any event or circumstance that renders the registration statement inaccurate or incomplete.

B. Every person registered under this chapter shall file a written notice of withdrawal with the metropolitan clerk within five business days following the termination of a lobbying employment agreement between the lobbyist and a client. Such notice of withdrawal shall be retained by the metropolitan clerk for a period of five years, and the date of withdrawal shall be noted on the Registered Lobbyist Index posted on the metropolitan clerk's website. Lobbyists must update their registration statement within five business days of any event or circumstance that renders the registration statement inaccurate or incomplete. If a lobbyist fails to register for a subsequent year, it shall be treated as a withdrawal for each client for which the lobbyist was registered unless a new registration is submitted pursuant to Section 2.196.040.

C. An annual lobbying and expense report must be completed for a year in which a lobbyist was registered, regardless of any subsequent amendment or withdrawal of registration. (Amdt. 1 to Ord. BL2024-290 § 2, 2024; Ord. BL2024-290 § 2, 2024; Ord. BL2020-147 § 1, 2020)

2.196.060 Annual lobbying and expense report requirements—Invitations and gifts.

A. Every lobbyist registered under this chapter shall electronically file with the metropolitan clerk a sworn report regarding lobbying activities and expenses no later than January 31st for the previous year. The report shall contain the following:

1. An itemized list, by date, beneficiary, amount and circumstance of the transaction, of each gift or expenditures of fifty dollars or more made by the

lobbyist on behalf of the client or anyone acting at the specific direction of the lobbyist on behalf of the client to benefit a candidate for public office, an official in the legislative branch, a member of the candidate or official's staff or immediate family, or a campaign committee or testimonial committee established for the benefit of a candidate for public office or such official;

2. An itemized list by date, beneficiaries, amount and circumstance of the transaction of each gift or expenditure of twenty-five dollars or more made by the lobbyist on behalf of the client or anyone acting at the specific direction of the lobbyist on behalf of the client to benefit an official in the executive branch, a member of the official's staff or immediate family, or a campaign committee or testimonial committee established for the benefit of such official;

3. An itemized list, by date, beneficiary, and amount of each political contribution of more than one hundred dollars made by the lobbyist on behalf of the client or anyone acting at the specific direction of the lobbyist on behalf of the client to benefit an official in the executive branch, a member of the official's staff or immediate family, a candidate for public office, or a campaign committee or testimonial committee established for the benefit of such official. This shall not require reporting of political contributions made for candidates for state and federal office, unless such candidate at the time of the contribution was serving as an official in the legislative or executive branch.

4. Such report shall include a sworn statement from the lobbyist attesting to the accuracy.

B. Every lobbyist registered under this chapter shall electronically file with the metropolitan clerk a sworn report regarding their own lobbying activities and expenses not related to a client no later than January 31st for the previous year. The report shall contain the following:

1. An itemized list, by date, beneficiaries, amount and circumstance of the transaction, of each gift or expenditures of fifty dollars or more made by the lobbyist or anyone acting at the specific direction of the lobbyist to benefit a candidate for public office, an official in the legislative branch, a member of the candidate or official's staff or immediate family, or a campaign committee or testimonial committee established for the benefit of a candidate for public office or such official;

2. An itemized list by date, beneficiaries, amount and circumstance of the transaction of each gift or expenditures of twenty-five dollars or more made by the lobbyist or anyone acting at the specific direction of the lobbyist to benefit an official in the executive branch, a member of the official's staff or immediate family, or a campaign committee or testimonial committee established for the benefit of such official.

3. An itemized list, by date, beneficiary, and amount of each political contribution of more than one hundred dollars made by the lobbyist or anyone acting at the specific direction of the lobbyist to benefit an official in the executive branch, a member of the official's staff or immediate family, a candidate for public office, or a campaign committee or testimonial committee established for the benefit of such official. This shall not require reporting of political contributions made for candidates for state and federal office, unless such candidate at the time of the contribution was serving as an official in the legislative or executive branch.

4. Such report shall include a sworn statement from the lobbyist attesting to the accuracy.

C. Entertainment, food, refreshments, meals, or beverages that are provided by a lobbyist or client of a lobbyist, may be provided to council members if such invitations are extended to either the entire membership of a council committee or the entire membership of the metro council. A copy of the invitation shall be delivered to the metro clerk's office and to each member of the council committee or each member of the entire council at least seven days in advance of the event by the client of a lobbyist or lobbyist paying for the event and must be included in their annual lobbying and expense reports unless:

1. the same equal opportunity is provided to the general public;

2. is provided at a scheduled meeting of an established and recognized association that has regular meetings; or

3. the total aggregate cost of the expenditure or gift does not exceed the limits set forth in Section 2.222.020.

D. In determining the threshold for the reporting levels required by this chapter of an event attended by more than one official of the legislative branch, a staff member, or immediate family member, a lobbyist may attribute only the actual cost for any gift or expenditure to each such official or member in attendance.

E. Any person providing funds to make a gift or expenditure other than a political contribution for the purpose of lobbying shall comply with the reporting requirements of this section whenever the purpose of such funds is to assist directly or indirectly an official of the executive or legislative branch, or any educational institution to lobby a specific program or programs on which legislative action is pending. Such person shall also report the source and amount of the funds which such gift or expenditure is made.

F. The clerk shall send a reminder letter to lobbyists who have not filed their client's Annual Lobbying and Expense Reports by February 5th. On March 1st, the clerk shall provide the board of ethical conduct a list of missing reports. A person responsible for filing a late report shall include a fifty dollar filing fee which shall be in addition to any other fees due.

G. If a lobbyist fails to file all required annual lobbying and expense reports for the previous year by March 1st, the lobbyist shall be ineligible for registration as a lobbyist for the current year. On March 1st, the clerk shall revoke the registration of any lobbyist who has failed to file all required annual lobbyist and expense reports for the previous year and refund any fees paid. The lobbyist shall be able to register for the current year if the board of ethical conduct has permitted the lobbyist's registration pursuant to Section 2.196.110.B and the lobbyist pays the filing fee for a late report pursuant to Section 2.196.060.F. (Amdt. 1 to Ord. BL2024-290 §§ 4, 5, 2024; Ord. BL2024-290 §§ 3—5, 2024; Ord. BL2020-402 § 3, 2020; Ord. BL2020-147 § 1, 2020)

2.196.070 Unlawful activities designated.

A. No lobbyist, lobbyist's client, or anyone acting at the specific direction of a client or lobbyist shall:

1. Offer or attempt to offer anything of value to an official in the legislative or executive branch, or to the official's immediate family, based on any stated or tacit understanding that the official's vote, official action or judgment would be influenced thereby.

2. Make a loan of money to any candidates for public office, officials in the legislative or executive branch, or to anyone on their behalf. No candidate for public office, official in the legislative or executive branch, or a member of that person's staff or immediate family, shall solicit or accept a loan from a lobbyist.

3. Knowingly or willfully make or cause to be made any false statement or misrepresentation of the facts concerning any matter for which the lobbyist is registered to lobby to any official in the legislative or executive branch or any matter which the client of a lobbyist or lobbyist is required to disclose to the metropolitan clerk.

4. Pay or agree to pay a candidate for public office or an official in the legislative or executive branch compensation for real or personal property or services substantially in excess of that charged in the ordinary course of business.

5. Permit a candidate for public office, an official in the legislative or executive branch, or a staff member or a member of the candidate or official's immediate family, to use the credit or credit card of a client or lobbyist or any other credit or credit card over which the client or lobbyist has control.

6. Pay the lodging expenses of an official in the legislative or executive branch or immediate family of the official.

B. No lobbyist shall:

1. Instigate the introduction of legislation for the purpose of obtaining employment to lobby of that legislation.

2. While engaging in lobbying on behalf of a client refuse to disclose to a metropolitan employee or elected official upon request the identity of the client.

C. No official in the legislative or executive branch or a member of the official's staff or immediate family shall solicit or accept anything of value in violation of subsection A of this section.

D. No official in the legislative or executive branch shall accept travel expenses, meals or lodging if payment of the travel expenses, meals or lodging violates this section or constitutes a prohibited gift. (Ord. BL2020-402 § 4, 2020; Ord. BL2020-147 § 1, 2020)

2.196.080 Lobbyist identification.

When speaking at a public hearing, presenting or speaking at a community meeting, or engaging in lobbying activities, a lobbyist must identify themselves by name and the client they are representing or speaking on behalf of at that time. (Ord. BL2020-147 § 1, 2020)

2.196.090 Lobbyist compensation.

No employer of a lobbyist shall offer or pay, and no lobbyist shall solicit or accept any fee, compensation or bonus for lobbying wherein the amount of the fee, compensation or bonus is contingent upon achievement of an outcome deemed to be successful for the employer. (Ord. BL2020-147 § 1, 2020)

2.196.100 Cooling off period.

A. A department head or employee of the mayor's office shall not be registered as a lobbyist within six months of voluntary cessation of their official responsibilities in matters which were directly within their former official responsibilities or employment with metro government. For this section, "official responsibility" means direct administrative or operating authority, whether intermediate or final, either exercisable alone or with other, either personally or through subordinates, to approve, disapprove or otherwise direct metropolitan government action.

B. An elected official shall not be registered as a lobbyist within six months following the voluntary

termination of office or leaving elected office. (Ord. BL2020-402 § 5, 2020; Ord. BL2020-147 § 1, 2020)

2.196.110 Complaints procedures.

A. Complaint procedures:

1. Any person may submit a complaint alleging that any one or more person, lobbyist, or client of a lobbyist has violated the provisions of this chapter.

2. The complaint must be filed electronically with the metropolitan clerk and be signed by the complainant and notarized, and must contain the following:

a. Complainant's legal name, current mailing address, home address, and a valid telephone number and email address;

b. Names and contact information of the individuals who committed the alleged violation, if possible;

c. Summary of the facts giving rise to the complaint;

d. Explanation of why those facts constitute a violation of this chapter; and

e. Any supporting documentation of the violation.

3. Upon receipt, the clerk shall:

a. Provide a copy of the complaint to the director of law, and to the members of the board of ethical conduct electronically.

b. Provide the complainant and the named persons with a copy of the complaint, hearing procedures, board actions, penalties and sanctions, enforcement procedures and appeal rights of the board of ethical conduct, and of this Code electronically and by U.S. Postal Service by certified mail.

4. Once a complaint has been received by the members of the board, and until a written decision has been issued by the board, no member of the board shall participate in any communication regarding the allegations or merits of the complaint, outside of the board's public meetings or hearings, except as contemplated by these procedures.

5. The department of law will evaluate the complaint, applying the law of this chapter to the facts alleged in the complaint, and shall undertake an investigation as may be deemed necessary, to determine if such complaint alleges facts, which if proven true, could be deemed to be a violation of this chapter. Within fourteen business days from its receipt of the complaint, the department of law will issue a report concluding whether the facts alleged in the complaint, if true, would give rise to a violation of this chapter, and including a recommendation to either dismiss the complaint or hold a hearing on the complaint. The department of law shall provide its report to the chair of the board of ethical conduct, and shall file it with the clerk on the same day.

6. Within three business days of receiving the department of law's report, the chair of the board of ethical conduct shall set a meeting of the board, which meeting is open to and noticed to the public. The clerk shall also provide notice of the meeting to the director of law electronically. The clerk shall provide notice of the meeting to the complainant and the named persons electronically and by U.S. Postal Service by certified mail.

7. At the board's meeting, the board shall evaluate the department of law's report, and may accept or reject the department of law's recommendation. At this meeting, the board may decide to dismiss the complaint or call for a hearing on the complaint and set a date for the hearing.

8. Whether or not the board holds a hearing on the complaint or dismisses the complaint, it shall issue a decision in writing. Any decision shall require the affirmative vote of at least four members of the board. If a hearing is to be held, the decision will not be issued until after the hearing is held.

9. Any decision shall require the affirmative vote of at least four members of the board.

10. The decision shall be filed with the clerk, and provided to the complainant and to the individuals named in the complaint.

B. Failure to comply with reporting requirements.

1. If a registered lobbyist fails to file all required lobbying and expenses report with the metropolitan clerk by the prescribed deadline and attempts to register as a lobbyist for the subsequent year, the board of ethical conduct shall call for a hearing pursuant to the procedures in Section 2.196.120. After the hearing, the board of ethical conduct shall determine if the lobbyist should be permitted to register and whether any other actions, penalties, sanctions, or enforcements, pursuant to Section 2.196.130, are appropriate. (Ord. BL2024-290 §§ 6, 7, 2024; Ord. BL2020-147 § 1, 2020)

2.196.120 Hearing procedures.

A. Hearing procedures:

1. If the board of ethical conduct calls for a hearing on a complaint, the hearing shall be conducted as follows:

a. The hearing shall be noticed to and open to the public, in accordance with these procedures.

b. Notice of hearing shall be provided to the complainant and to the individual named in the complaint (together, the "parties").

c. The parties may, but are not required to, submit material to the board. If a party does wish to submit such material to the board, the party must file the material with the clerk, and provide a copy of the same to the

other parties, at least seven business days prior to the hearing. The clerk shall provide a copy of the same to the board members and the department of law.

d. The parties shall have a full and fair opportunity, but are not required, to present their positions and facts to the board at the hearing. Each party has the right to the assistance of legal counsel. Each party shall be allotted a reasonable amount of time to make its presentation to the board.

e. All parties may call witnesses to give testimony at the hearing, which testimony shall be given under oath, with the witnesses stating their legal names. All witnesses will be subject to cross-examination. Each party must file with the clerk a list of the witnesses that the party intends to call at the hearing, and provide a copy of the same to the other parties, at least seven business days prior to the hearing. At the hearing, no party shall be permitted to call upon any person to give testimony if that person's name was not included on such list; however, the board may permit such an unnamed witness to be called by a party if, in the board's judgment, there was good cause for not timely naming the witness and the other parties would not be unduly prejudiced.

f. Board members may ask questions of any party, counsel, or witness at any time during the hearing.

g. The board may, in the exercise of its discretion, permit interested persons present at the hearing to offer testimony under oath, even if those persons were not called as witnesses by any party.

h. The board may continue a hearing to a later date.

i. The director of law or a metropolitan attorney shall be present during the hearing to advise the board.

j. The board shall abide by any applicable policies, rules, or procedures promulgated by the board as otherwise permitted in chapter 2.222. (Ord. BL2024-290 § 8, 2024; Ord. BL2020-147 § 1, 2020)

2.196.130 Actions, penalties, sanctions, enforcement and appeals of decisions of the board.

A. Actions:

1. If, after a hearing, the board decides that an individual violated the procedures set forth in this chapter, then the board shall take one or more of the following actions, as decided by affirmative vote of at least four of its members:

a. Recommend to the council that the elected official or member of the board or commission be censured;

b. Recommend to the violating elected official or member of a board or commission resign their respective position;

c. Suspend the registration of the lobbyist or prohibit the person from registering as a lobbyist for a period of up to two years. The metropolitan clerk shall act to prohibit or suspend registration upon a decision by the board following the procedures set forth in this Section 2.196.140;

d. Direct the metropolitan clerk to issue a citation;

e. Refer the matter to the district attorney general for appropriate action; and/or,

f. Refer the matter to the director of law with a request that appropriate civil action be instituted by the metropolitan government for restitution or other relief.

2. The board of ethical conduct may take into account the following mitigating factors and include them in the written record of the vote:

a. Good faith effort to comply. The violator is found to have made a good faith effort to comply with the law.

b. Prompt corrective action. The violator is found to have taken prompt corrective action where corrective action was possible to remedy the violation.

c. Prompt self-reporting. The violator is found to have reported promptly the violation to the clerk or the board of ethical conduct.

3. The board of ethical conduct may take into account the following aggravating factors and include them in the written record of the vote:

a. Intent. The violator is found to have acted knowingly. An act is done knowingly if done voluntarily and intentionally and not because of mistake or accident or other innocent reason.

b. Repeat violation. The violator previously has been found by the board of ethical conduct or by a court of competent jurisdiction to have violated the same or similar provisions.

c. Obstruction of investigation. The violator is found to have obstructed the investigation of the board of ethical conduct into the same violation.

B. Penalties: In addition to the suspension and registration prohibition actions noted in subsection A. of this section, anyone found by a court of competent jurisdiction to be in violation of this chapter may be punished by a fine of up to fifty dollars per day per violation.

C. Sanctions: Upon receipt of a recommendation from the board that an elected official or member of a board or commission be censured by the council, the chairman of the rules-confirmations-public elections committee shall timely file one or more resolutions with the metropolitan clerk, for the next regularly scheduled council meeting to do one or more of the following:

1. Providing for censure of the member, which resolution shall require twenty-one affirmative vote to be adopted.

2. Providing for the removal of the censured member of council from any or all committees and/or removal as chairman of a committee of the council which resolution shall require twenty-one affirmative vote to be adopted.

3. Providing for the censure or removal of a board/commission member which resolution shall require twenty-one affirmative votes to be adopted.

D. Enforcement:

1. Board recommendations and complaints regarding violations by employees, other than elected officials, of the standards set forth in this chapter shall be made to the appointing authority. Decisions of the appointing authority regarding violation of the standards of conduct set forth herein by employees within the classified service may be appealed to the civil service commission in accordance with the civil service rules adopted pursuant to Section 12.06 and 12.07 of the Metropolitan Charter.

2. The metropolitan clerk shall issue citations at the direction of the board.

E. Appeals: Any suspension or revocation under this chapter may be appealed by writ of certiorari to the Circuit or Chancery Courts of Davidson County within sixty days from the date of the action taken by the board.

(Ord. BL2020-147 § 1, 2020)

Chapter 2.198

ADOPT-A-STREET PROGRAM

Sections:

2.198.010	**Program established.**
2.198.020	**Administration.**
2.198.030	**Memoranda of understanding with persons volunteering to clean up or maintain certain public ways.**
2.198.040	**Severability.**

2.198.010 Program established.

There is established an "adopt-a-street" program for the Metropolitan Government of Nashville and Davidson County. (Ord. 91-1499 § 1, 1991)

2.198.020 Administration.

The adopt-a-street program shall be administered by the board of parks and recreation. (Ord. 91-1499 § 2, 1991)

2.198.030 Memoranda of understanding with persons volunteering to clean up or maintain certain public ways.

In connection with the adopt-a-street program, the director of public works, with the approval of the board of parks and recreation, is authorized to enter into the memorandum of understanding attached to the ordinance codified herein with any person or group of persons who desire, on a voluntary basis, to clean up and/or maintain portions of the public streets and rights-of-way of the metropolitan government. Each such agreement must be approved by the metropolitan department of law. (Ord. 91-1499 § 3, 1991)

2.198.040 Severability.

Should any court of competent jurisdiction declare any section, clause or provision of the ordinance codified in this chapter to be unconstitutional, illegal or unenforceable for any other reason, such decision shall affect only such section, clause or provision so declared unconstitutional, illegal and unenforceable, and shall not affect any other section, clause or provision of said ordinance, it being the intent of the metropolitan council that all other provisions of such ordinance remain in full force and effect. (Ord. 91-1499 § 4, 1991)

Chapter 2.202

EQUIPMENT INSPECTION POLICY

Sections:

2.202.010 Equipment inspection policy.

2.202.010 Equipment inspection policy.

A. All departments, boards and commissions of the metropolitan government shall make regular and routine inspections, at least annually, of all major and heavy duty equipment and vehicles. For the purposes of the ordinance codified in this chapter, "major and heavy duty equipment and vehicles" shall mean all motorized construction, fire fighting, maintenance or specialized equipment or passenger vehicles having an original cost of one hundred thousand dollars or greater.

B. Reports of all such inspections shall be filed with the metropolitan clerk. In addition, regular and routine inspection reports shall be filed with the director of finance on or before April 1st of each year. (§§ 1, 2 of Amdt. 1 to Ord. 95-1311, 3/21/95; Ord. 95-1311 §§ 1, 2, 1995)

Chapter 2.206

COMPLIANCE WITH METROPOLITAN CODE

Sections:

2.206.010 Compliance with Metropolitan Code.

2.206.010 Compliance with Metropolitan Code.

It should be the policy of the Metropolitan Government of Nashville and Davidson County that it and all of its various departments, agencies, boards and commissions comply with all provisions of the Metropolitan Code, and all ordinances, rules and regulations of the metropolitan government to the same extent that the government requires compliance by nongovernmental entities and persons. Neither the metropolitan government nor any of its departments, agencies, boards or commissions shall have the authority to exempt itself from compliance, except by resolution requiring twenty-one votes of the metropolitan council for just cause. (Ord. BL2018-1375 § 1, 2018; § 1 of Amdt. 1 to Ord. 95-1323, 4/4/95; Ord. 95-1323 § 1, 1995)

Chapter 2.210

ECONOMIC AND COMMUNITY DEVELOPMENT INCENTIVE PROGRAM

Sections:

2.210.010	**Definitions.**
2.210.020	**Economic and community development incentive grants.**
2.210.030	**Approval of economic and community development incentive grant agreements and PILOT agreements.**

2.210.010 Definitions.

"Board" means the industrial development board of the Metropolitan Government of Nashville and Davidson County.

"Corporate headquarters" means the international, national or regional headquarters of a well known and successful company, comparable, but not limited to, companies on the Fortune 500 listing, the location thereof within the boundaries of the metropolitan government is expected to result in the creation of at least five hundred additional jobs within the boundaries of the metropolitan government during the first five years of operations or during the first five years of an expansion of operations.

"ECD" means the mayor's office of economic and community development.

"Metropolitan government" means the Metropolitan Government of Nashville and Davidson County.

"Qualified company" means the corporation, partnership, limited liability company or other entity that operates a corporate headquarters or a technology firm, and all successors and affiliates thereof.

"Qualified project" means a corporate headquarters or a technology firm located on property controlled by the board within the boundaries of the metropolitan government.

"Technology firm" means the manufacturing facilities, offices, distribution facilities, customer support or call center facilities of a well known and successful company, comparable, but not limited to, companies on the Fortune 500 listing, involved in the servicing, manufacturing, or assembly of computers or telecommunications equipment or component parts thereof, if the location thereof within the boundaries of the metropolitan government is expected to result in the creation of at least five hundred new jobs within the boundaries of the metropolitan government during the first five years of operations or during the first five years of an expansion of operations. (Ord. BL2010-806 §§ 1—3, 2011; Ord. 99-1680 § 1 (part), 1999)

2.210.020 Economic and community development incentive grants.

A. The metropolitan government may make economic and community development incentive grants to the board for qualified projects in order to encourage economic and community development within the boundaries of the metropolitan government. The amount of the economic and community development incentive grant during any year will be determined by multiplying the average number of new full time equivalent employees of the qualified company within the boundaries of the metropolitan government during the preceding year by an amount up to five hundred dollars. The actual amount of the economic and community development incentive grant with respect to each qualified project and the period of such grant shall be determined taking into account, among other things, the amount of revenue from all sources that is anticipated to be received by the metropolitan government with respect to the location of the qualified company and its operations in the qualified project and other economic and community development opportunities that the qualified project is expected to create. Any grant made in accordance with the provisions of this Section 2.210.020 will be memorialized by an agreement among the metropolitan government, the board and the qualified company that operates the qualified project, pursuant to which the metropolitan government will authorize the board to utilize such economic and community development incentive grants to acquire, whether by purchase, lease or otherwise, real or personal property for use for the qualified project, and to improve, maintain, extend, equip and furnish real and personal property owned by the board and used for the qualified project.

B. Upon the ECD being contacted by a qualified company, the ECD may recommend that the metropolitan government make an economic and community development incentive grant to the board for the purposes described in this section, subject to approval as provided in Section 2.210.030 of this Code, in order to encourage economic and community development within the boundaries of the metropolitan government. The actual amount of the economic and community development incentive grant and the period of such grant shall be determined taking into account, among other things, the number of jobs created, the amount of revenue from all sources that is anticipated to be received by the metropolitan government with respect to the location of the qualified company and its operations and other economic and community development opportunities

that the qualified company is expected to create. Any grant made in accordance with the provisions of this Section 2.210.020(B) will be memorialized by an agreement between the metropolitan government and the qualified company, pursuant to which the metropolitan government will authorize the board to utilize such economic and community development incentive grants to reimburse the qualified company for all or part of its documented expenditures related to the acquisition, preparation or occupancy of office space and other facilities, costs of moving to or relocating within the area of the metropolitan government, and costs associated with employee training.

C. Beginning January 1, 2018, a qualified company shall be eligible for economic and community development incentive grants only upon satisfaction of the following additional requirements:

1) Written confirmation is provided by the director of the Metropolitan Transit Authority (MTA) that the qualified company has either committed to qualified project participation in the EasyRide MTA-RTA Commuter Program or provided a valid explanation as to why participation is not feasible; and

2) For the duration of any economic and community development incentive grants, the qualified company must provide an annual written report to the ECD regarding the participation rate of its full-time equivalent employees in the EasyRide MTA-RTA Commuter Program. Failure to submit timely written reports may be grounds for termination of a grant.

D. Upon the appropriation of an economic and community development incentive grant through the annual operating budget ordinance for the metropolitan government to a qualified company pursuant to this section, the metropolitan government shall appropriate an equivalent or greater amount to the Barnes Fund for Affordable Housing. Such appropriations shall not be construed as prohibiting other appropriations to the Barnes Fund separate from the annual operating budget ordinance of the metropolitan government from available revenue sources. (Ord. BL2020-533 §§ 1, 2, 2020; Amdt. 2 to Ord. BL2019-1472 § 1, 2019; Amdt. 1 to Ord. BL2019-1472 § 1, 2019; Ord. BL2019-1472 § 1, 2019; Ord. BL2017-904 § 1, 2017; Ord. BL2017-643 § 1, 2017; Ord. BL2010-806 § 4, 2011; Ord. 99-1680 § 1 (part), 1999)

2.210.030 Approval of economic and community development incentive grant agreements and PILOT agreements.

A. This section applies to two types of financial incentives provided through the board: (1) economic and community incentive grants authorized by Section 2.210.020 and (2) payment-in-lieu-of-taxes (PILOT) incentives, authorized by Tenn. Code Ann. § 7-53-305. Any such grant or PILOT incentive must be memorialized by a written agreement. The proposed grant or PILOT incentive and the related agreement shall be submitted to the metropolitan county council for approval by resolution. Any such resolution must receive the affirmative votes of at least twenty-one members of the metropolitan county council in order for it to be approved. All such grant agreements authorized under Section 2.210.020 that are to be funded by the metropolitan government shall provide that the metropolitan government's financial obligations thereunder are subject to the annual appropriation of funds by the metropolitan council.

B. To enable the metropolitan council's assessment of qualified projects, and to determine whether the public interest is served by the incentive under consideration, and to promote a transparent process, the mayor's office of economic and community development (ECD) shall solicit from qualified companies seeking a grant or PILOT incentive for a project, a project proposal that addresses each of the following:

1. The type and number of jobs that will be created — both during and after construction, if any — by the qualified company on the project, including whether those jobs will be temporary or permanent, and the number of identified jobs that will be filled by Davidson County residents;

2. Establishment of a workforce plan disclosing: (a) whether the qualified project will involve use of temporary or staffing agencies, the Nashville Career Advancement Center, or other third parties for identifying, recruiting or referring job applicants; (b) whether the individuals hired for the jobs identified will be employed by the company or by subcontractors or other third parties; and (c) the wages and benefits offered for the identified jobs, and a comparison of those wages to the average wage levels in Davidson County for comparable positions;

3. Whether the qualified project will involve the use of apprentices from programs certified by the U.S. Department of Labor; and

4. The number and type, within the preceding seven years, of (a) violations assessed by the U.S. Department of Labor — Occupational Safety and Health Administration and/or by the Tennessee Occupational Safety and Health Administration against the qualified company, or any contractor or subcontractor of the company retained on the qualified project; or (b) employment or wage-related legal actions filed within federal or state courts

against the qualified company, or any contractor or subcontractor of the company retained on the qualified project.

5. Whether the qualified company provides its employees with benefits that include transportation, accommodation, and related costs when necessary to obtain medical treatment that is otherwise unavailable in the employees' home state, including reproductive healthcare treatment such as abortion.

The ECD shall present this project proposal to the metropolitan council prior to the council's vote on the incentive and related agreement. The qualified company's project proposal shall be incorporated into the agreement upon approval by the metropolitan council. The ECD shall further present the information required under this section B in any report required to be submitted to the metropolitan council under its workforce development program developed under Chapter 2.211.

C. To enable the continued assessment of qualified projects, and to confirm that the public interest is being served by the award of the incentive, each qualified company receiving a grant or payment in lieu of taxes shall submit to the ECD quarterly reports demonstrating compliance with the agreement. With respect to grants awarded under Section 2.210.020, the ECD shall submit an annual report to the metropolitan council relaying compliance data, consistent with Section 2.190.010 of the Metropolitan Code. In the event such report shows that the qualified company failed to comply with its incentive agreement, the metropolitan council may, in its discretion upon the affirmative votes of at least twenty-one members, suspend the incentive prospectively or terminate the incentive agreement prospectively. (Ord. BL2022-1372 § 1, 2022; Amdt. 1 to Ord. BL2017-983 § 1, 2017; Ord. BL2017-983 § 1, 2017; Ord. 99-1680 § 1 (part), 1999)

Chapter 2.211

WORKFORCE DEVELOPMENT PROGRAM

Sections:

2.211.010	**Workforce development program established.**
2.211.020	**Diversified business participation.**
2.211.030	**Workforce development program participation.**

2.211.010 Workforce development program established.

There is hereby established as part of the mayor's office of economic and community development (ECD) a workforce development program for the purpose of providing job training and recruitment to Nashville residents for construction projects for which any publicly financed economic development incentives have been provided by the metropolitan government. This includes, but is not limited to, incentives in the form of tax increment financing (TIF), payments-in-lieu-of-tax (PILOT) agreements, participation agreements, and economic and community development incentives authorized by Metro Code Chapter 2.210. (Ord. BL2019-1560 § 1, 2019; Ord. BL2013-517 § 1, 2013)

2.211.020 Diversified business participation.

Private businesses receiving any publicly financed economic development incentives by the metropolitan government for a construction project or projects shall establish a goal of spending a minimum of twenty percent of the project's costs with small, minority-owned, and women-owned business enterprises, commonly referred to as "diversified business enterprises (DBE)". (Ord. BL2019-1560 § 1, 2019; Ord. BL2013-517 § 1, 2013)

Editor's note—The provision above establishing goals based on race and gender is void pursuant to Public Chapter 458 (2025).

2.211.030 Workforce development program participation.

Private businesses receiving any publicly financed economic development incentives by the metropolitan government for a construction project or projects shall utilize the metropolitan government's workforce development program to ensure that reasonable efforts are made to hire or utilize residents of Davidson County for the project(s). (Ord. BL2019-1560 § 1, 2019; Ord. BL2013-517 § 1, 2013)

Chapter 2.212

SMALL BUSINESS ECONOMIC DEVELOPMENT INCENTIVE GRANTS

Sections:

2.212.010	**Definitions.**
2.212.020	**Small business economic development incentive grants.**
2.212.030	**Blighted property grants.**
2.212.040	**Grants subject to funding availability.**
2.212.050	**Development of rules and regulations.**

2.212.010 Definitions.

"Board" means the Industrial Development Board of the Metropolitan Government of Nashville and Davidson County.

"ECD" means the mayor's office of economic and community development.

"Full-time job" means a job provided by a qualified small business at a qualified project site at which the person employed in such job is compensated for working at least thirty hours per week at the qualified project site.

"Metropolitan government" means the Metropolitan Government of Nashville and Davidson County.

"Prohibited business" means construction, restaurants, limited-service restaurants, nightclubs, hotels/motels, tattoo parlors, body piercing shops, cash advance, check cashing, title loan, pawnshops, adult entertainment, automobile sales, automobile service and/or repair, automobile parking, landfills, wrecker services, and businesses operating from residential property.

"Qualified project" means property located within the boundaries of the metropolitan government occupied by a qualified small business.

"Qualified project site" means a singular physical location at which a qualified small business operates.

"Qualified small business" means a company or firm that meets all of the following criteria:

1. The company or firm is engaged in a for-profit service or manufacturing industry that is not a prohibited business as defined herein;

2. Creates a minimum of ten new full-time equivalent jobs at the qualified project site within a twelve-month period at the qualified project site who are making an average wage rate equal to or greater than eighty percent of the annual wage rate average for all occupations within the Nashville-Davidson County Metropolitan Statistical Area as published by the United States Department of Labor, Bureau of Labor Statistics; and

3. Has a maximum of one hundred full-time equivalent jobs prior to applying for a small business economic development incentive grant under this chapter.

"Veteran" means a person who has served in and been discharged honorably from the Armed Forces of the United States. (Ord. BL2014-990 § 1, 2015; Ord. BL2013-420 § 1, 2013)

2.212.020 Small business economic development incentive grants.

A. The metropolitan government may make economic development incentive grants to the board for a small business economic incentive grant program intended to encourage economic development within the boundaries of the metropolitan government. The amount of the small business economic development incentive grant during any year will be determined by multiplying the number of new full-time jobs of the qualified small business at the qualified project site within the boundaries of the metropolitan government during the preceding year by the amount of five hundred dollars, and/or seven hundred fifty dollars for each newly-employed veteran at the project site, up to a maximum annual payment of fifty thousand dollars. Any grant made in accordance with the provisions of this section will be memorialized by an agreement between the board and the qualified small business that operates the qualified project, pursuant to which the board will authorize the use of such grant funds to reimburse the qualified small business for all or part of its documented expenditures related to the acquisition, preparation or occupancy of office space and other facilities, costs of moving to or relocating within the area of the metropolitan government, and costs associated with employee training.

B. In conjunction with the board, the ECD shall be responsible for administering the small business economic development incentive grant program approved by this chapter. The board, with assistance from the ECD, shall adopt rules consistent with this chapter for the administration of the small business economic incentive grant program. Upon adoption, such rules shall be filed with the metropolitan clerk. Small business economic incentive grants shall be made to qualified small businesses on a first-come-first-served basis subject to the availability of funding approved for the program by the metropolitan council through the metropolitan government operating budget ordinance.

C. The ECD shall provide written notice to the metropolitan council within thirty days of each small business economic development incentive grant made to a qualified small business. (Ord. BL2013-420 § 1, 2013)

2.212.030 Blighted property grants.

A. In accordance with T.C.A. § 7-51-1901, et seq., the metropolitan government, through ECD, may make grants to developers who invest in blighted property for the purpose of stabilizing the value of the neighborhood and increasing the value of the facilities being constructed or rehabilitated on blighted property.

B. Such grants shall be made from funds appropriated by the council from the general fund of the general services district for such purpose.

C. Such grant funds shall be used for the sole purpose of constructing or rehabilitating the exterior portions of blighted commercial property located within eligible census tracts having a property value not to exceed one million dollars at the time the grant application is made to ECD based upon the appraised value of the property as determined by the metropolitan assessor of property and where the construction or rehabilitation investment exceeds ten thousand dollars. If a single tenant undertakes construction or rehabilitation on a portion of a multitenant blighted commercial property, the property value shall be pro-rated for purposes of determining eligibility. Eligible census tracts are those where at least sixty-five percent of households are at or below eighty percent area median income (AMI). The mayor's office of economic and community development shall maintain, on file and open for inspection, a list and map of eligible census tracts to be updated annually.

D. The amount of the grant shall not exceed fifty percent of the documented investment of the developer up to a maximum grant amount of fifty thousand dollars.

E. ECD shall make blighted property grants to qualified developers on a first-come-first-served basis subject to the availability of funding approved for the program by the metropolitan council through the metropolitan government operating budget ordinance. (Ord. BL2019-2 § 1, 2019; Amdt. 1 to Ord. BL2017-860 § 1, 2017; Ord. BL2017-860 § 1, 2017; Ord. BL2016-147 § 1, 2016; Ord. BL2013-420 § 1, 2013)

2.212.040 Grants subject to funding availability.

All agreements for small business economic development incentive grants and blighted property grants to be funded by the metropolitan government shall expressly provide that the metropolitan government's financial obligations thereunder are conditioned upon the appropriation of funds by the metropolitan council. The board shall have no obligation to make a small business economic development incentive grant, and the metropolitan government shall have no obligation to make a blighted property grant, if adequate funds are not available. (Ord. BL2013-420 § 1, 2013)

2.212.050 Development of rules and regulations.

ECD shall have the authority and responsibility to develop policies, procedures, rules, and/or regulations to implement this chapter. Such policies, procedures, rules, and/or regulations shall include a mechanism for obtaining proof of eligibility for the small business economic development incentive and blighted property grant programs. (Ord. BL2013-420 § 1, 2013)

Chapter 2.213

AFFORDABLE AND WORKFORCE HOUSING INCENTIVE GRANTS

Sections:

2.213.010	**Definitions.**
2.213.020	**Incentive grants for new units.**
2.213.030	**Standards for occupancy and construction of affordable and/or workforce housing.**
2.213.040	**Incentive grants for the optional conversion of existing rental units.**
2.213.050	**Administration of grant program.**
2.213.060	**Annual certification.**
2.213.070	**Cap on total amount of grant awards.**
2.213.080	**Noncompliance.**
2.213.090	**Grants subject to funding availability.**
2.213.100	**Sunset provision.**

2.213.010 Definitions.

As used in this chapter:

"Affordable housing" means housing that, on an annual basis, costs thirty percent or less than the estimated median household income for households earning sixty percent or less than the median household income for Davidson County based on the number of persons in the household, as established by the "Median Household Income in the Past 12 Months by Household Size" from the most recently available United States Census Bureau American Community Survey.

"ECD" means the mayor's office of economic and community development.

"Household" means all people who occupy a housing unit regardless of relationship. A household may consist of a family, a person living alone, or unrelated individuals living together, provided that no more than three unrelated persons shall occupy the same dwelling unit. In order to be counted as an eligible household for purposes of affordable and/or workforce housing incentive grants, the total household income shall not exceed the median household income for the applicable affordable or workforce income category as defined in this section.

"OEOE" means the mayor's office of economic opportunity and empowerment (OEOE).

"Qualified developer" means a developer of affordable and/or workforce housing that the metropolitan government determines is willing and able to increase the affordable and/or workforce housing stock within Nashville and Davidson County.

"Third party entity" means an entity providing administrative services to the metropolitan government to assist in the management of the housing program.

"Urban Zoning Overlay (UZO)" means the urban zoning overlay district established pursuant to Article XII of Chapter 17.36 of the metropolitan zoning code.

"Workforce housing" means housing that, on an annual basis, costs thirty percent or less than the estimated median household income for households earning more than sixty percent and not in excess of one hundred twenty percent of the median household income for Davidson County based on the number of persons in the household, as established by the "Median Household Income in the Past 12 Months by Household Size" from the most recently available United States Census Bureau American Community Survey. (Amdt. 2 to Ord. BL2016-342 § 1, 2016; Amdt. 1 to Ord. BL2016-342 § 1, 2016; Ord. BL2016-342 § 1, 2016)

2.213.020 Incentive grants for new units.

A. The metropolitan government may make incentive grants to qualified developers to assist with the development of new affordable and/or workforce housing within the boundaries of the metropolitan government. Incentive grants may be made both for rental developments and owner-occupied units. Such grant funds shall be disbursed on a monthly basis.

1. Rental developments. Owners/developers of new construction rental developments, including developments under construction at the time of application, within the UZO or along a multimodal corridor designated in the Major and Collector Street Plan, excluding Expressways, Freeways, and Ramps may apply for a workforce and/or affordable housing incentive grant. The amount of the incentive grant will be the difference between the average rent for an occupied unrestricted rental housing unit and the average rent for an occupied affordable or workforce housing unit multiplied by the number of occupied affordable or workforce housing rental units for the duration that housing rental units remain affordable or workforce housing. The average rent for an occupied unrestricted rental housing unit will be calculated on a square footage basis using the rent charged for the three unrestricted units within the same development that are most comparable to each individual affordable or workforce housing unit. For purposes of this section, "average rent" includes all ancillary fees charged to all tenants of the development, including parking fees, application fees, association fees, and charges for amenities.

2. Owner-occupied units. The amount of the incentive grant will be a one-time payment of ten thousand dollars per unit for properties located outside of the urban zoning overlay (UZO) district, and twenty thousand dollars per unit for properties located within the UZO or along a multimodal corridor designated in the Major and Collector Street Plan, excluding Expressways, Freeways, and Ramps. All grants for owner-occupied units shall be conditioned upon the recording of deed restrictions with the register of deeds ensuring the units remain designated for affordable and/or workforce housing for the duration provided in the grant agreement. The form of the deed restrictions shall be established in the grant agreement.

B. The maximum amount of a grant to any one qualified developer of affordable or workforce housing rental units shall not exceed fifty percent of the difference between the annual post-development and pre-development real property ad valorem tax assessment for the calendar year for which an incentive grant is applicable. In the event that grant payments for any calendar year exceed the maximum amount, the director of finance, in consultation with OEOE and the grantee, is authorized to take corrective action in accordance with the written policies and procedures. (Amdt. 2 to Ord. BL2016-342 § 1, 2016; Amdt. 1 to Ord. BL2016-342 § 1, 2016; Ord. BL2016-342 § 1, 2016)

2.213.030 Standards for occupancy and construction of affordable and/or workforce housing.

A. To ensure livability, the calculation of bedrooms per affordable or workforce housing units shall be similar to the calculation of bedrooms per market rate units in the project.

B. Exteriors of the affordable and/or workforce housing units shall closely resemble the exteriors of other units within the development, and shall use similar construction materials. (Amdt. 2 to Ord. BL2016-342 § 1, 2016; Amdt. 1 to Ord. BL2016-342 § 1, 2016; Ord. BL2016-342 § 1, 2016)

2.213.040 Incentive grants for the optional conversion of existing rental units.

Owners of existing rental housing developments shall be eligible for an annual incentive grant if they voluntarily convert market-based rental units to affordable or workforce housing units. Owners of existing affordable and/or workforce rental housing units shall also be eligible to receive an incentive grant if they agree to continue to maintain such units as affordable and/or workforce housing units. The amount of the incentive grant will be the difference between the average rent for an occupied unrestricted rental housing unit and the average rent for an occupied affordable or workforce housing unit multiplied by the number of occupied affordable or workforce housing rental units for the duration that housing rental units remain affordable or workforce housing. The average rent for an occupied unrestricted rental housing unit will be calculated on a square footage basis using the rent charged for comparable unrestricted units within the same census tract that are most comparable to each individual affordable or workforce housing unit, as determined by OEOE. In no event shall the amount of the annual grant be greater than twenty percent of the real property ad valorem tax assessment for the calendar year for which an incentive grant is applicable. (Amdt. 2 to Ord. BL2016-342 § 1, 2016; Amdt. 1 to Ord. BL2016-342 § 1, 2016; Ord. BL2016-342 § 1, 2016)

2.213.050 Administration of grant program.

A. The affordable and workforce housing grant program shall be administered by OEOE, with assistance from ECD, the finance department, the department of codes administration, and the planning department.

B. The OEOE may procure the services of a third party entity to assist with administration of the grant program.

C. The director of finance and the director of OEOE shall have the authority and responsibility to develop written policies, procedures, rules, and/or regulations to implement this chapter. Such policies shall include the factors to be considered in determining whether a developer is a qualified developer and a mechanism for grantees to request monthly grant payments. Such policies shall be effective upon filing with the metropolitan clerk. Any amendments or modifications to such policies shall be effective upon filing with the metropolitan clerk, with a copy provided to the metropolitan council office.

D. Incentive grants may be awarded to a qualified developer for either affordable or workforce housing units, or both, provided OEOE shall take reasonable measures to ensure an equitable distribution of grant funds for both affordable and workforce housing.

E. Any grant made in accordance with the provisions of this section will be memorialized by an agreement between the metropolitan government and the qualified developer, which shall be approved by the metropolitan council by resolution. The maximum term for an incentive grant awarded pursuant to this chapter for rental units shall be fifteen years. All owner-occupied units for which one-time incentive grant payments have been made shall be maintained as for-sale affordable/workforce housing for thirty years from the

date of initial occupancy. For new developments, the grant agreements shall be finalized prior to a building permit being issued.

F. All grants awarded pursuant to this chapter shall be approved by the director of the OEOE, metropolitan director of finance, and the metropolitan director of law. (Amdt. 2 to Ord. BL2016-342 § 1, 2016; Amdt. 1 to Ord. BL2016-342 § 1, 2016; Ord. BL2016-342 § 1, 2016)

2.213.060 Annual certification.

A. Not later than February 15 of each year, the grantee shall submit a certification to the OEOE and the finance department for review covering the previous calendar year. The annual certification shall include at a minimum for each occupied affordable and/or workforce housing rental unit:

1. The number of months and partial months the unit was occupied;

2. The median household income level applicable to the unit;

3. The rent charged for the unit; and

4. The market value rent of the unit calculated based on the three closest comparable units on a square footage basis.

B. The annual certification shall also include the total number of occupied affordable and/or workforce housing units in the development compared to the total number of affordable and/or workforce housing units required pursuant to the grant agreement. The annual certification shall also compare the total grant payments for all occupied affordable and/or workforce housing units and the maximum annual grant allowable for the calendar year.

C. The annual certification shall include a certification from the chief executive officer of the grantee that the information is true, correct and complete and that each occupied affordable and/or workforce housing rental unit was occupied by an eligible household.

D. The annual certification shall be accompanied by an examination conducted in accordance with attestation standards established by the American Institute of Certified Public Accountants conducted by a reputable and licensed independent accountant giving an opinion that the amount of the incentive being requested represents, in all material respects, the incentive grant payment owed in conformity with the grant agreement. The independent accountant shall examine, on a test basis, documentation supporting the eligibility of the occupants of the affordable and/or workforce housing units. Additional reporting requirements may be specified in each grant agreement.

E. The incentive grant payment shall be remitted to the developer monthly.

F. Upon review of the annual certification, if it is determined that a grantee received an overpayment in a calendar year, the grantee shall reimburse the metropolitan government by July 31 of the year following the year for which the overpayment was made. In the event that a grant was underpaid in a calendar year, the metropolitan government shall pay the amount of the underpayment to the grantee by July 31 of the year following the year for which the underpayment accrued. (Amdt. 2 to Ord. BL2016-342 § 1, 2016; Amdt. 1 to Ord. BL2016-342 § 1, 2016; Ord. BL2016-342 § 1, 2016)

2.213.070 Cap on total amount of grant awards.

Beginning with fiscal year 2017-2018, the annual amount of all grants awarded pursuant to this chapter including related administrative costs in the aggregate shall not exceed two million dollars exclusive of other grants or contributions made specifically for the purpose of funding the incentive grants. The aggregate grant amount may be increased by resolution of the metropolitan council. The amount budgeted annually will be based upon estimates of subsequent year awards and subject to the maximum set forth in this section. The director of finance and the director of the OEOE shall review the incentive grant program on an annual basis to determine whether the demand for grant funds significantly exceeds the amount of the cap, and shall make a recommendation to the metropolitan council regarding whether the amount of the cap should be adjusted. Any adjustments to the amount of the cap shall be approved by the metropolitan council by resolution prior to becoming effective. (Amdt. 2 to Ord. BL2016-342 § 1, 2016; Amdt. 1 to Ord. BL2016-342 § 1, 2016; Ord. BL2016-342 § 1, 2016)

2.213.080 Noncompliance.

In the event a grantee fails to provide the number of affordable and/or workforce units required for the specified grant term pursuant to the grant agreement, the director of finance shall have the authority to require the grantee to repay the metropolitan government for all grant funds disbursed for affordable and/or workforce housing units in accordance with the provisions of the grant agreement. The director of finance shall have the authority to pursue all other remedies at law or in equity to ensure the availability of the affordable and/or workforce housing units required under the grant agreement. (Amdt. 2 to Ord. BL2016-342 § 1, 2016; Amdt. 1 to Ord. BL2016-342 § 1, 2016; Ord. BL2016-342 § 1, 2016)

2.213.090 Grants subject to funding availability.

All agreements for affordable and/or workforce housing incentive grants to be funded by the metropolitan government shall expressly provide that the metropolitan government's financial obligations thereunder are conditioned upon the appropriation of funds by the metropolitan council. The metropolitan government shall have no obligation to make an affordable and/or workforce housing incentive grant if adequate funds are not available. If an incentive grant payment is not made as a result of lack of funding pursuant to this section, the grantee shall be relieved from the obligation to maintain the required number of affordable and/or workforce housing units. (Amdt. 2 to Ord. BL2016-342 § 1, 2016; Amdt. 1 to Ord. BL2016-342 § 1, 2016; Ord. BL2016-342 § 1, 2016)

2.213.100 Sunset provision.

The provisions of this chapter shall expire and be null and void on December 31, 2019 ("sunset date") unless extended by resolution of the metropolitan council. This provision, commonly known as a "sunset provision," is included to ensure that the effectiveness and necessity of this chapter is reviewed by the metropolitan council after its adoption. If the provisions of this chapter are not extended by resolution of the metropolitan council before the sunset date, no incentive grants shall be awarded after the sunset date. This sunset provision shall not operate to terminate any existing grant agreement in effect on the sunset date, except for a lack of available funds in accordance with Section 2.213.090. (Amdt. 2 to Ord. BL2016-342 § 1, 2016; Amdt. 1 to Ord. BL2016-342 § 1, 2016; Ord. BL2016-342 § 1, 2016)

Chapter 2.214

EFFECTIVE COMMUNICATION WITH INDIVIDUALS WITH DISABILITIES IN METROPOLITAN GOVERNMENT PROGRAMS AND SERVICES

Sections:

2.214.010	**Policy.**
2.214.020	**Auxiliary aids and services.**
2.214.030	**Notification.**
2.214.040	**Response to request for auxiliary aid or service.**
2.214.050	**Grievance procedures.**

2.214.010 Policy.

It is the policy of Metropolitan Government of Nashville and Davidson County to ensure that communications with applicants, participants, and members of the public with disabilities are as effective as communications with others. The metropolitan government will furnish appropriate auxiliary aids and services where necessary to afford an individual with a disability an equal opportunity to participate in, and enjoy the benefits of, a program, service, or activity conducted by the metropolitan government. In determining what type of auxiliary aid or service is necessary, the metropolitan government will give primary consideration to the requests of the individual with disabilities. (Ord. BL2000-403 § 1, 2000)

2.214.020 Auxiliary aids and services.

"Auxiliary aids and services" includes (1) qualified interpreters, notetakers, transcription services, written materials, telephone handset amplifiers, assistive listening devices, assistive listening systems, telephones compatible with hearing aids, closed caption decoders, open and closed captioning, telecommunications devices for deaf persons (TDD's), videotext displays, or other effective methods of making aurally delivered materials available to individuals with hearing impairments; and (2) qualified readers, taped texts, audio recordings, Brailled materials, large print materials, or other effective methods of making visually delivered materials available to individuals with visual impairments. (Ord. BL2000-403 § 1, 2000)

2.214.030 Notification.

A list of the metropolitan government departmental ADA contact persons will be distributed to all metropolitan government employees. If an employee does not know which department is sponsoring or responsible for providing the program or service that requires the provision of auxiliary aids or services to ensure effective communication, they will contact the metropolitan government ADA coordinator.

Requests for auxiliary aids or services should be made by the public in advance of the meeting, hearing or other program, service, or activity provided by the metropolitan government. For public meetings and hearings, the ADA contact person should be notified at least one week in advance. For on-going services and programs, the ADA contact person should be notified at least forty-eight hours in advance. For emergencies or urgent requests, the responsible ADA contact person or the metropolitan government ADA coordinator should be notified immediately. The best effort to fulfill the request will be made. (Ord. BL2000-403 § 1, 2000)

2.214.040 Response to request for auxiliary aid or service.

When an auxiliary aid or service is required to ensure effective communication, the metropolitan government will provide an opportunity for an individual with disabilities to request the auxiliary aid or service of their choice and will give primary consideration to the choice expressed by the individual. "Primary consideration" means that the metropolitan government will honor the choice, unless another equally effective means of communication is available, or that use of the means chosen would result in a fundamental alteration in the service, program, or activity or in undue financial burden. When the responsible ADA contact person is deciding whether an alternative means of communication will ensure effective communication, the ADA contact person will consult with the individual with a disability in order to determine the nature of the requirement for an auxiliary aid or service, that is, in what ways effective communication can be achieved with the individual with a disability in the context of the Government program, service, or activity. The ADA contact person may ask the individual with a disability for technical assistance and information on how to obtain a particular auxiliary aid or service.

Within forty-eight hours after the request, the departmental ADA contact person will notify, in writing, the requesting individual with a disability of the proposed auxiliary aid or service to be provided. A copy of the proposal will be sent to the metropolitan government ADA coordinator. (Ord. BL2000-403 § 1, 2000)

2.214.050 Grievance procedures.

If the requesting individual with a disability is dissatisfied with the ADA contact person's proposed auxiliary aid or service, the individual is encouraged to file a grievance with the metropolitan government ADA coor-

dinator. The coordinator will promptly contact the individual in person or by telephone and strive to resolve the grievance within one week. (Ord. BL2000-403 § 1, 2000)

Chapter 2.215

HISTORIC PRESERVATION GRANT PROGRAM

Sections:

2.215.010	**Definitions.**
2.215.020	**Historic preservation grants.**
2.215.030	**Grants subject to funding availability.**
2.215.040	**Development of rules and regulations.**

2.215.010 Definitions.

[As used in this chapter:]

"ECD" means the mayor's office of economic and community development.

"Historically significant structure" means a structure within the boundaries of the metropolitan government that is used for commercial purposes and that meets one or more of the following criteria:

1. The structure is individually listed or is eligible for listing in the National Register of Historic Places as determined by the Metropolitan Historic Zoning Commission of Nashville and Davidson County, or by the Tennessee Historical Commission; or,

2. The structure is within a district listed or eligible for listing in the National Register of Historic Places or is within an historic overlay district, such structure having been determined to contribute to the architectural character of the district by the Metropolitan Historic Zoning Commission of Nashville and Davidson County or by the Tennessee Historical Commission; or,

3. The structure is within a historic overlay district, or within a district that meets the criteria for designation as an historic overlay district, such structure having been determined to contribute to the architectural character of the district by the Metropolitan Historic Zoning Commission of Nashville and Davidson County. (Ord. BL2017-860 § 2, 2017)

2.215.020 Historic preservation grants.

A. The metropolitan government, through ECD, may make grants to property owners who make improvements to the exterior of historically significant structures for the purpose of preserving the historic character of the structures.

B. Such grants shall be made from funds appropriated by the council from the general fund of the general services district for such purpose.

C. Such grant funds shall be used for the sole purpose of rehabilitating the exterior portions of historically significant structures within eligible census tracts. Eligible census tracts are those where at least sixty-five percent of households are at or below eighty percent of the area median income as determined by the U.S. Department of Housing and Urban Development. ECD shall maintain, on file and open for inspection, a list and map of eligible census tracts to be updated annually.

D. The grant agreement shall require a minimum expenditure by the property owner of five thousand dollars, and the grant amount shall not exceed the greater of fifty percent of the cost of improvement(s) to the exterior of the historically significant structure or fifty thousand dollars. For example, a twenty thousand dollar grant would require an investment of at least twenty thousand dollars by the property owner, for a total project cost of at least forty thousand dollars.

E. The grant shall be paid after the property owner has submitted proof of the required documented expenditures pursuant to the grant agreement.

F. ECD shall make historic preservation grants to qualified developers on a first-come-first-served basis subject to the availability of funding approved for the program by the metropolitan council through the metropolitan government operating budget ordinance. (Ord. BL2017-860 § 2, 2017)

2.215.030 Grants subject to funding availability.

All agreements for historic preservation grants to be funded by the metropolitan government shall expressly provide that the metropolitan government's financial obligations thereunder are conditioned upon the appropriation of funds by the metropolitan council. The metropolitan government shall have no obligation to make a historic preservation grant if adequate funds are not available. (Ord. BL2017-860 § 2, 2017)

2.215.040 Development of rules and regulations.

ECD shall have the authority and responsibility to develop policies, procedures, rules, and/or regulations to implement this chapter. Such policies, procedures, rules, and/or regulations shall include a mechanism for obtaining proof of eligibility for the historic preservation grant program. (Ord. BL2017-860 § 2, 2017)

Chapter 2.218

METROPOLITAN EMPLOYEES' CONSOLIDATED CHARITIES PROGRAM

Sections:

2.218.010	**Established.**
2.218.020	**Administration.**
2.218.030	**Director of personnel.**
2.218.040	**Eligibility.**
2.218.050	**Written request and authorization.**
2.218.060	**Purchasing agent.**

2.218.010 Established.

There is established the metropolitan employees' consolidated charities program (hereinafter the "program") to provide a systematic and comprehensive means of allowing employees of the metropolitan government to make voluntary donations to charitable organizations through voluntary payroll deduction. (Ord. BL2001-769 § 1 (part), 2001)

2.218.020 Administration.

The program shall be administered under the supervision of the director of personnel, and the payroll deductions and payment of the contributions shall be under the supervision of the director of finance. (Ord. BL2001-769 § 1 (part), 2001)

2.218.030 Director of personnel.

The director of personnel, with the approval of the director of finance, is authorized to adopt and promulgate written regulations regarding the operation of the program. (Ord. BL2001-769 § 1 (part), 2001)

2.218.040 Eligibility.

Only such organizations as satisfy the criteria adopted in Tennessee Code Annotated, Section 7-3-314, as the same may hereafter be amended, shall be eligible to receive donations through the program. (Ord. BL2001-769 § 1 (part), 2001)

2.218.050 Written request and authorization.

Payroll donations for the program may only be made by written request and authorization by an employee of the metropolitan government in a format approved by the director of finance. The written request and authorization must specify each charitable organization to which the employee wishes to contribute by payroll deduction and the sums to be deducted for each charitable deduction. The number of charitable organizations to which an employee may contribute by payroll deduction may be limited by regulation. (Ord. BL2001-769 § 1 (part), 2001)

2.218.060 Purchasing agent.

The purchasing agent is authorized, in accordance with Title 4 of this code, to enter into one or more contracts for administration of the program. Such contracts may provide that one or more employees of the metropolitan government may assist the contractor in the administration of the program. (Ord. BL2001-769 § 1 (part), 2001)

Chapter 2.222

STANDARDS OF CONDUCT, DISCLOSURE OF INTERESTS, AND ENFORCEMENT

Sections:

2.222.010	**Definitions for standards of conduct.**
2.222.020	**Standards of conduct.**
2.222.030	**Disclosure.**
2.222.040	**Board of ethical conduct.**
2.222.050	**Sanctions.**
2.222.060	**Enforcement.**

2.222.010 Definitions for standards of conduct.

For the purposes of this chapter:

(1) "Anything of value" includes any financial benefit, or other item that is pecuniary or compensatory in value to a person, including, but not limited to, any valuable act, advance, award, contract, compensation, contribution, deposit, emolument, employment, favor, fee, forbearance, fringe benefit, gift, gratuity, honorarium, loan, offer, payment, perquisite, privilege, promise, reward, remuneration, service, subscription, or the promise that any of these items will be conferred in the future.

(2) For purposes of the foregoing definition, the following do not constitute part of "Anything of Value:"

(a) Payment by a governmental entity of salaries, compensation, employee benefits, or authorized reimbursement of actual and necessary expenses; or payment by an employer or business other than a governmental entity of salaries, compensation, employee benefits, or authorized reimbursement of actual and necessary expenses, when the payment is unrelated to an employee's status as a public official or employee and is not made for the purpose of influencing, directly or indirectly, the official action or decision of any such employee; or

(b) Fees, expenses, or income, including those resulting from outside employment which are permitted and reported in accordance with applicable law; or

(c) Anything if received for the lawful exchange of consideration unrelated to the employee's position with the metropolitan government that is at least equal in value to the item or act conferred or performed; or

(d) Campaign or political contributions that are received and reported in accordance with state law; or

(e) Hospitality extended for a purpose wholly unrelated to the official business of any governmental entity; or

(f) Non-cash awards of nominal or trifling value publicly presented in recognition of public service; or

(g) Gifts or other tokens of recognition presented by representatives of governmental entities or political subdivisions acting in their official capacities; or

(h) Anything of value, regardless of the value, when the item of value is offered to a governmental entity, is accepted on behalf of the governmental entity, and is to remain the property of the government entity; or

(i) Commercially reasonable loans made in the ordinary course of a lender's business in accordance with prevailing rates and terms, and which do not discriminate directly or indirectly against or in favor of an employee because of such individual's status as a metropolitan government employee; or

(j) Complimentary copies of trade publications; or

(k) Reasonable compensation for a published work that did not involve the use of a governmental entity's time, equipment, facilities, supplies, staff, or other resources, if the payment is arranged or paid by the publisher of the work; or reasonable compensation of a published work that did involve the use of a governmental entity's time, equipment, facilities, supplies, staff, or other resources, if the payment of the compensation to the public official or employee is lawfully authorized by a representative of the governmental entity who is empowered to authorize such compensation; or

(l) Any payment, gift, or other transfer of value which is unrelated to and does not arise from the recipient's position as a metropolitan government employee, and if the activity or occasion for which it is given does not involve the use of a governmental entity's time, equipment, facilities, supplies, staff, or other resources in any manner or degree that is not available to the general public; or

(m) Anything received as a devise, bequest, or inheritance; or

(n) Gifts received that are unrelated to a person's position as a metropolitan government employee

(o) Food and/or beverages that would not be prohibited under section 2.222.020(s)(1).

(3) "Belief" or "believes" denotes that the person involved actually supposed the fact in question to be true. A person's belief may be inferred from circumstances.

(4) "Direct interest" shall have the same meaning as defined in T.C.A. 12-4-101,et seq. and 6-54-107, et seq.

(5) "Employee" means any official, whether elected or appointed, officer, employee or servant, or any member of any board, agency, commission authority or corporation (whether compensated or not), or any officer, employee or servant thereof, of the Metropolitan Government of Nashville and Davidson County.

(6) "Indirect interest" shall have the same meaning as defined in T.C.A. 12-4-101, et seq. and 6-54-107, et seq.

(7) "Material" or "materially" means something that a reasonable person would consider important in assessing or determining how to act in a matter.

(8) "Reasonable" or "reasonably" when used in relation to conduct by an employee denotes the conduct of a reasonably prudent and competent public servant.

(9) "Source" means an individual, entity, or group of individuals or entities reasonably believed by the employee to be affiliated for purposes of contact with the employee. A registered lobbyist shall be a "Source" separately as well as deemed affiliated with each of the lobbyist's clients.

(10) "Value" means the nominal face amount of the customary charges paid or assessed for the same product, access, or service by non-employees, exclusive of sales taxes, gratuities paid to others, and (as to charitable fund raising events) the deductible portion of the nominal cost. (Ord. BL2017-560 § 1, 2017; Amdt. 2 to Ord. BL2007-1382 § 3, 2007; Ord. BL2007-1382 § 3, 2007)

2.222.020 Standards of conduct.

Employees:

a. Shall not accept or solicit, for personal financial gain, any benefit that might reasonably tend to influence them to act improperly in the discharge of their official duties;

b. Shall not accept or solicit bribery;

c. Shall promptly report to the district attorney or other investigative authority any attempts made to bribe the employee or any other employee;

d. Shall not accept or solicit any cash of any amount, other than in compliance with election campaign laws and fully reported pursuant to same, irrespective of the intent of the payor, if such payment or solicitation is in any way directly or indirectly related to the employee's position in the metropolitan government;

e. Shall not accept or solicit anything of value as herein defined, except for the acceptance of food and/or beverages that would not be prohibited pursuant to subsection s. of this section;

f. Shall not accept or solicit any promise of any benefit, direct or indirect, to himself, family members, or his employer (if the employer is other than the metropolitan government) which the employee believes or should reasonably believe was intended to influence action taken in the employee's official capacity;

g. Shall not receive or use for personal purposes any property, services or funds of metropolitan government unless authorized by law;

h. Shall not use for personal gain, or for the gain of any family member or employer, information pertaining to metropolitan government which is not a matter of common knowledge, or use his or her position to secure information about any person or entity for any purpose other than the performance of official responsibility;

i. Shall not use their metropolitan government positions improperly to secure unwarranted privileges or exemptions for themselves, relatives or others, provided, however, that this provision does not preclude employees from acting in a manner consistent with their official duties or from zealously providing public services to anyone who is entitled to them;

j. Shall not participate in making or influencing any metropolitan governmental decision or action in which they know that they have any material financial interest distinguishable from that of the public generally or from that of other metropolitan officers or employees generally;

k. Shall not give reasonable basis by their conduct for the impression that any person can improperly influence, or unduly enjoy their favor in, the performance of their official duties, or that they are unduly affected by the kinship, rank, position or influence of any person;

l. Shall not use or disclose, other than in the performance of their official duties or as may be required by law, confidential information gained in the course of or by reason of their positions;

m. Shall not violate the direct or indirect conflict of interest, consulting, lobbying, or any other requirements of state law existing or which may be adopted regulating the conduct of municipal or county officials or employees;

n. Shall not provide services for compensation, directly or indirectly, to a person or organization who is requesting an approval, action, or determination from the metropolitan government. This restriction does not apply to members of the metropolitan council or members of metropolitan government boards and commissions if the employment is the member's primary source of income and if the member discloses his or her interest and complies with this Code and state law with regards to conflicts of interest;

o. Shall not accept other employment or engage in outside activities which might impair their independent judgment in the performance of their public duty;

p. Shall not personally participate in a decision in a matter if the employee is in negotiation concerning or has an arrangement concerning prospective employment with a person or organization which has a financial interest in a matter under consideration by or within the jurisdiction of the metropolitan government. For purposes of this subsection, the term "decision" shall mean a decision, approval, disapproval, recommendation,

investigation or rendering of advice, and the term "matter" shall include but not be limited to a matter, proceeding, application, request for ruling or determination, contract or claim which involves the metropolitan government.

q. Shall not personally represent or appear in behalf of the private interest of another before the metropolitan council, or any board or department of the metropolitan government; or, if the represented person's interest is adverse to that of the metropolitan government, represent any person:

(1) In any quasi judicial proceeding involving the metropolitan government; or

(2) In any judicial proceeding to which the metropolitan government is a party;

(3) Provided, that nothing in this subsection shall preclude:

(i) An employee from speaking or appearing without compensation before the council or any board or department on their own behalf;

(ii) An employee from representing his or her personal interests consistent with state law and this Code;

(iii) An employee from testifying as a witness under subpoena in a judicial or quasi-judicial proceeding;

(iv) An employee who is a lobbyist registered pursuant to Chapter 2.196 of the Metropolitan Code from representing or appearing before the metropolitan council, or any board or department of the metropolitan government on behalf of the interests of the person(s) or organizations(s) for which the employee is lobbying.

(v) A member of a metropolitan government board or commission who is a licensed attorney from representing or appearing on behalf of the private interest of another, provided the client's interests are not adverse to or pertain to the board or commission the attorney serves on.

(vi) A member of the metropolitan council from appearing before any board, commission, agency, or department of the metropolitan government to express the opinions and/or wishes of his/her constituents, provided the member of council is not acting in a representative capacity and does not receive anything of value for appearing before such board, commission, agency, or department.

r. If disclosure statements are required to be filed by the employee in accordance with this chapter, shall not fail or refuse to file in a timely manner all disclosure statements and reports, which statements and reports shall include all material information reasonably required to be included and shall not omit any material information reasonably necessary to make such reports complete and meaningful;

s. If related in any way, directly or indirectly, to being an employee:

(1) Shall not accept meals, beverages, food, promotional items, or hand-produced items of a value in excess of twenty-five dollars received from a single source in any calendar year; and

(2) Shall not accept free or discounted admissions, tickets, access to events or travel expenses from any single source of an aggregate value in any calendar year in excess of one hundred dollars, provided that an employee may accept from the sponsoring organization, on behalf of himself and a guest, free or discounted admissions, tickets or access of a face value in excess of one hundred dollars if the event is generally recognized as an annual fund raising benefit sponsored by a non-profit organization. (Ord. BL2011-31 § 1, 2011; Amdt. 1 to Ord. BL2010-808 § 1, 2011; Ord. BL2010-808 § 1, 2011; Amdts. 1, 4 to Ord. BL2007-1382 § 3, 2007; Ord. BL2007-1382 § 3, 2007)

2.222.030 Disclosure.

A. In an effort to advance the favorable opinion of the public in the integrity of government, the disclosure requirements contained in this section shall apply to the following employees: (1) the mayor; (2) all employees in the mayor's office, including the members of the mayor's cabinet; (3) the metropolitan council office; (4) the holders of all elected offices authorized or created by the Metropolitan Charter; (5) all directors, executive directors, assistant directors, and associate directors of metropolitan government agencies, boards, and commissions, but not including Nashville Electric Service, the Metropolitan Nashville Airport Authority, the Metropolitan Development and Housing Agency and the Metropolitan Transit Authority.

B. Annual disclosures:

1. On or before January 31 of each year, each employee included in subsection A. of this section shall file with the metropolitan clerk an annual disclosure statement setting forth the information requested therein as of and for the year ended December 31 of the preceding year.

a. Said disclosure may be filed either electronically or in written paper form.

b. For disclosure statements filed in paper form, the statement must be personally signed by the employee and attested under penalty of perjury as being true to the best of that employee's information and belief.

c. For disclosure statements filed electronically, the disclosure statement must include the printed first and last name of the employee who shall indicate on the form under penalty of perjury that the information contained therein is true to the best of that employee's information and belief.

d. In completing the disclosure form, the employee should recognize that the purpose of the disclosure is to alleviate reasonable concerns, justified or not, of the public concerning possible conflicts and influences upon the employee's exercise of his or her official discretion. In situations involving ambiguity as to the application of the requested information to the facts of an employee's situation, the disclosure statement should be completed in all material respects, reasonably consistent with this intent.

2. Each employee shall amend his or her current disclosure statement within thirty days of the occurrence of any material change to the disclosures.

3. All disclosure statements filed pursuant to this section, and amendments thereto shall be maintained by the metropolitan clerk, readily available to the public.

4. The annual disclosure statement shall require the information set forth in the following form:

ANNUAL DISCLOSURE STATEMENT

NAME: _____ POSITION/OFFICE: _____

This Annual Disclosure Statement is submitted in compliance with Section 2.222.030 of the Metropolitan Code for the year ended December 31, _____.

Use additional sheets of paper as necessary.

1. List all sources of your income for the preceding calendar year.

Gifts from family members and relatives by blood or marriage need not be disclosed.

Sources:

_____

_____

_____

_____

2. To the best of your knowledge, list all sources of income for your spouse for the preceding year.

Gifts from family members and relatives by blood or marriage need not be disclosed.

Sources:

_____

_____

_____

_____

_____

3. Do you or your spouse presently have a financial interest of at least 5% (five percent) of any business with operations, offices, or interests in the Metropolitan Nashville area?

_____ Yes _____ No

If Yes:

Yourself or Spouse: Business name and address: Percent of the interest, if known:

_____

_____

_____

_____

_____

_____

4. Do you or your spouse have a direct or indirect financial interest in any real property located in Davidson County, excluding your primary residence? Indirect interests indicate interests of greater than 5% in Real Estate Investment Trusts, other trusts in which you hold a beneficial interest in excess of 5% and other legal entities whose primary business is real estate related.

_____ Yes _____ No

If Yes:

Name and address of the real property:_____

_____

_____

_____

5. Do you or your spouse hold any paid or unpaid position with any for-profit entity, non-profit entity, labor group, or educational or other institution which you have not already listed on this form?

_____ Yes _____ No

If Yes:

Person: Position: Entity:

_____

_____

_____

_____

_____

6. Do you or your spouse have a financial interest in, or are you or a family member a party to, any litigation involving the Metropolitan Government?

_____ Yes _____ No

If Yes, describe each:_____

_____

_____

7. Do you or your spouse have any* debts, guarantees, or endorsements of debts aggregating over $5,000 owed to any one creditor?

*Excluding liabilities owed to a family member or relative by blood or marriage, and excluding loans from established financial institutions made in the ordinary course of business on usual and customary terms.

_____ Yes _____ No

If Yes, describe each:_____

_____

_____

_____

8. Do you or your spouse have any debts in excess of $5,000 which are secured by a guarantee or collateral of any individual other than a family member or a relative by blood or marriage?

_____ Yes _____ No

If Yes, describe each:_____

_____

_____

_____

Under penalty of perjury, the information contained herein is true to the best of my information and belief.

_____

Signature of Employee

_____

Date

5. The metropolitan clerk is authorized to prescribe a form by which amendments may be submitted, both in written paper form and electronically.

C. Annual benefits disclosures. In addition to the foregoing, each employee included in subsection A of this section shall file a benefits report, in form and substance as attached below, with the metropolitan clerk on or before January 31 for the year ended December 31 of the preceding year. The benefits disclosure statement shall include anything of value received by the employee during the previous year other than donations in connection with political campaigns made and reported in compliance with Tennessee election laws.

1. Said benefits report may be filed either electronically or in written paper form. The metropolitan clerk, working with the department of information technology services, shall develop a method for electronic filing through the clerk's website.

2. For benefits reports filed in paper form, the report must be personally signed by the employee and attested under penalty of perjury as being true to the best of that employee's information and belief.

3. For benefits reports filed electronically, the report must include the printed first and last name of the employee who shall indicate on the form under penalty of perjury that the information contained therein is true to the best of that employee's information and belief.

4. The annual disclosure statement shall require the information set forth in the following form:

ANNUAL BENEFIT REPORTING STATEMENT

EMPLOYEE NAME: _____

For the year ending December 31 ____ (year).

Use additional sheets of paper as necessary.

Instructions:

List Anything of Value you have received, as defined in Chapter 2.222 of the Metropolitan Code of Laws.

Benefit type may be described by reference to the following abbreviations:

M = Meals, food, and beverage items

A = Admissions, tickets to events, or other access (including parking)

T = Travel expense

O = Other (describe)

Source: Date: Benefit Type and Description: Value:

_____

_____

_____

_____

_____

_____

_____

Under penalty of perjury, the information contained herein is true to the best of my information and belief.

_____

Signature of Employee

_____

Date

(Amdt. 1 to Ord. BL2020-550 §§ 4, 5, 2021; Ord. BL2020-550 §§ 1—4, 2021; Ord. BL2017-560 § 2, 2017; Ord. BL2012-110, §§ 1, 2, 2012; Amdts. 2, 5 to Ord. BL2007-1382 § 3, 2007; Ord. BL2007-1382 § 3, 2007)

2.222.040 Board of ethical conduct.

A. Creation, continuing jurisdiction, organization, and membership:

1. There is created the board of ethical conduct, sometimes hereinafter referred to as the "board." The board shall consist of seven members, who shall have been residents of the area of the metropolitan government for not less than two years prior to appointment and shall continue such residency as a qualification for membership. No voting member shall be an official or employee of the metropolitan government or any other government. The members of the board shall serve for terms of three years each. The presence of five members shall be required to constitute a quorum for the board to conduct business. The president pro tem of the council shall be an ex officio, non-voting, member of the board.

2. One member each of the board shall be selected by the following organizations:

League of Women Voters of Nashville.

Nashville Area Central Labor Council.

Napier-Looby Bar Association.

Nashville Area Chamber of Commerce.

Nashville Bar Association.

National Association for the Advancement of Colored People Nashville Branch.

Tennessee Immigrant & Refugee Rights Coalition.

Upon the selection of the member of the board by the above-named organizations, the organization shall file with the metropolitan clerk evidence of the selection.

3. Any vacancy due to any cause shall be filled for the unexpired term in the same manner as the original appointment. A vacancy shall be deemed to exist upon the occurrence of any one or more of the following conditions:

(a) If a member moves their permanent residence out of Davidson County; dies or resigns or for any reason refuses to serve during the period for which they were appointed; or

(b) If the member becomes a member of the council, an official, or employee of the metropolitan government or any other government or a candidate for public office; or

(c) If a member fails to attend and participate in three consecutive meetings (provided said meetings were not held in the same week) or fails to attend at least two-thirds of all meetings of the board held within a calendar year, provided that said board meets at least three times during the calendar year.

4. The board shall elect from its membership a chairperson and vice-chairperson who shall each be selected for one-year terms. The metropolitan clerk or designee shall serve as the custodian of its records and minutes and shall act as the board secretary. The metropolitan attorney shall furnish legal assistance to the board.

5. The board, in addition to such other duties as may be assigned to it by ordinance, shall have the following duties and responsibilities:

(a) To establish and make public the procedures and rules governing its internal organization and the conduct of its affairs; and

(b) To maintain records of its investigations, inquiries and proceedings; and

(c) To render advisory opinions; and

(d) To conduct an investigation and make recommendations about any member's conduct as provided below.

(e) To conduct an investigation and make recommendations regarding any alleged violation of the lobbyist code as set forth in Chapter 2.196 of this code, using the procedures set forth in Section 2.196.085.

6. The council board of conduct shall replace and supersede the council board of conduct created pursuant to Substitute Ordinance No. BL2005-659, as amended, ("hereinafter the "board of conduct");

7. The board shall have continuing jurisdiction over all matters heretofore referred to the board of conduct.

B. Advisory opinions:

1. Any metropolitan government elected official or member of any metropolitan government board or commission may request, in writing, an advisory opinion of the board regarding any matter relating to conduct or compliance of future activities with the standards set forth herein. The right to request advisory opinions shall be limited to such metropolitan government elected officials or members of boards or commissions. Said written request for an advisory opinion shall be delivered to the metropolitan clerk as secretary of the board, who will promptly deliver the same to the chair of the board.

2. The board may seek from the requesting member clarification of the request, but all such requests and clarifications shall be in writing. The advisory opinion of the committee of the board shall be delivered within forty-five days of the date of receipt of the request by the metropolitan clerk, unless that period is extended by the requesting member.

3. When a member has requested and received an advisory opinion and his or her conduct is in compliance with the conduct deemed acceptable in the advisory opinion, that advisory opinion shall thereafter be considered prima facia evidence that the conduct of the

member does not violate these standards of conduct. In making the determination of the weight to be given to the advisory opinion the board will take into account the degree to which the request for the advisory opinion and the response accurately described the activity or conduct which subsequently formed the basis of the complaint. No such advisory opinions shall have other force of law.

C. Procedures for evaluations and hearing of complaints regarding conduct:

1. Complaint procedures:

(a) Any person may submit a complaint alleging that any one or more metropolitan government elected officials or members of a metropolitan government board or commission have violated the standards of conduct or an executive order currently in effect which regulates the ethical standards of conduct for employees of the metropolitan government.

(b) The complaint must be signed by the complainant and notarized, and must contain the following:

i. Complainant's legal name, current mailing address, and a valid telephone number and/or email address;

ii. Names of person or persons who committed the alleged violation;

iii. Summary of the facts giving rise to the complaint; and,

iv. Explanation of why those facts constitute a violation of the standards of conduct or current executive order which regulates the ethical standards of conduct.

(c) The complaint must be filed with the metropolitan clerk. Upon receipt, the clerk will provide a copy of the complaint to the person or persons named therein, the director of law, and to the members of the council board of conduct.

(d) Additionally, upon receipt of a complaint, the clerk shall provide the complainant and the named persons with a copy of the complaint procedures and hearing procedures of this Code. As used in these sections, unless otherwise noted, to "provide" is to send by U.S. Mail or to hand-deliver.

(e) The department of law will evaluate the complaint, applying the law of the standards of conduct or current executive order which regulates the ethical standards of conduct to the facts alleged in the complaint, and shall undertake an investigation as may be deemed necessary, to determine if such complaint alleges facts, which if proven true, could be deemed to be a violation of the standards set forth in this chapter. Within fourteen business days from its receipt of the complaint, the department of law will issue a report concluding whether the facts alleged in the complaint, if true, would give rise to a violation of the standards of conduct or current executive order which regulates the ethical standards of conduct, and recommending either that the complaint be dismissed or a hearing be held on the complaint. The department of law shall provide its report to the chair of the board of conduct, and shall file it with the clerk.

(f) After receiving the department of law's report, the chair of the council board of conduct shall call a meeting of the board, which meeting is open to and noticed to the public. The clerk shall also provide notice of the meeting to the director of law, the complainant, and the persons named in the complaint.

(g) At the board's meeting, the board shall evaluate the department of law's report, and may accept or reject the department of law's recommendation. The board may decide to dismiss the complaint or call for a hearing on the complaint.

(h) Whether or not the board holds a hearing on the complaint or dismisses the complaint, it shall issue a decision in writing. Any decision shall require the affirmative vote of at least four members of the board. If a hearing is to be held, the decision will not be issued until after the hearing is held. The decision shall be filed with the clerk, and provided to the complainant and to the person or persons named in the complaint.

(i) Once a complaint has been received by the members of the board, and until a written decision has been issued by the board, no member of the board shall participate in any communication regarding the allegations or merits of the complaint, outside of the board's public meetings or hearings, except as contemplated by these procedures.

2. Hearing procedures:

(a) If the board of conduct calls for a hearing on a complaint, the hearing shall be conducted as follows:

i. The hearing shall be noticed to and open to the public, in accordance with these procedures.

ii. Notice of hearing shall be provided to the complainant and to the members or officials named in the complaint (together, the "parties").

iii. The parties may, but are not required to, submit material to the board. If a party does wish to submit such material to the board, the party must file the material with the clerk, and provide a copy of the same to the other parties, at least seven calendar days prior to the hearing. The clerk shall provide a copy of the same to the board members and the department of law.

iv. The parties shall have a full and fair opportunity, but are not required, to present their positions and facts to the board at the hearing. Each party has the right to the assistance of legal counsel. Each party shall be allotted a reasonable amount of time to make its presentation to the board.

v. All parties may call witnesses to give testimony at the hearing, which testimony shall be given under oath, with the witnesses stating their legal names. All witnesses will be subject to cross-examination. Each party must file with the clerk a list of the witnesses that the party intends to call at the hearing, and provide a copy of the same to the other parties, at least seven calendar days prior to the hearing. At the hearing, no party shall be permitted to call upon any person to give testimony if that person's name was not included on such list; however, the board may permit such an unnamed witness to be called by a party if, in the board's judgment, there was good cause for not timely naming the witness and the other parties would not be unduly prejudiced.

vi. Board members may ask questions of any party, counsel, or witness at any time during the hearing.

vii. The board may, in the exercise of its discretion, permit interested persons present at the hearing to offer testimony under oath, even if those persons were not called as witnesses by any party.

viii. The board may continue a hearing to a later date.

ix. The director of law or a metropolitan attorney shall be present during the hearing to advise the board.

3. Action of the board:

(a) If, after a hearing, the board decides that a metropolitan government elected official or member of a board or commission violated the standards of conduct or current executive order which regulates the ethical standards of conduct, then the board shall take one or more of the following actions, as decided by affirmative vote of at least four of its members:

i. Issue a written warning to the elected official or member of the board or commission, with a copy sent to the vice mayor or the executive director and chair of the applicable board or commission, as appropriate. Such warning should include the violation that occurred and any remedy the board requests be taken by the elected official or member of the board or commission;

ii. Issue a public censure of the elected official or member of the board or commission;

iii. Recommend to the council that the elected official or member of the board or commission be censured;

iv. Recommend to the violating elected official or member of a board or commission resign his or her respective position;

v. Refer the matter to the district attorney general for appropriate action; and/or,

vi. Refer the matter to the director of law with a request that appropriate civil action be instituted by the metropolitan government for restitution or other relief.

(Amdt. 1 to Ord. BL2024-477 § 1, 2024; Ord. BL2024-477 § 1, 2024; Ord. BL2024-152 §§ 1, 2, 2024; Ord. BL2022-1528 § 7, 2023; Ord. BL2020-147 § 2, 2020, eff. 1-1-2021; Amdt. 1 to Ord. BL2018-1111 §§ 1—4, 2018; Ord. BL2018-1111 §§ 1—4, 2018; Ord. BL2013-508 § 1, 2013; Amdt. 2 to Ord. BL2007-1382 § 3, 2007; Ord. BL2007-1382 § 3, 2007)

2.222.050 Sanctions.

Upon receipt of a recommendation from the board that an elected official or member of a board or commission be censured by the council, the chairman of the rules-confirmations-public elections committee shall file a resolution with the metropolitan clerk providing for censure of the member, which resolution shall be adopted by an affirmative vote of twenty-one members. Said resolution may also provide for the removal of the censured member of council from any or all committees of the council and removal as chairman of a committee of the council, and/or provide for referral of the matter to other authority as appropriate. (Ord. BL2007-1382 § 3, 2007)

2.222.060 Enforcement.

Complaints regarding violations by employees, other than elected officials or members of boards or commissions, of the standards set forth in this chapter shall be made to the appointing authority. Decisions of the appointing authority regarding violation of the standards of conduct set forth herein by employees within the classified service may be appealed to the Civil Service Commission in accordance with the Civil Service Rules adopted pursuant to section 12.06 and 12.07 of the Metropolitan Charter. (Ord. BL2007-1382 § 3, 2007)

Chapter 2.224

COMMUNITY GARDEN GRANT PROGRAM

Sections:

2.224.010	**Program established—Purpose.**
2.224.020	**Administration.**
2.224.030	**Eligibility—Use of funds.**
2.224.040	**Procedure for making grants.**
2.224.050	**Parks and recreation department—Powers and responsibilities.**

2.224.010 Program established—Purpose.

There is established the metropolitan government community garden grant program (hereinafter "the program") for the purpose of making matching grants to eligible nonprofit organizations that develop, operate, and/or maintain gardens within the area of the metropolitan government for the use and benefit of the community and/or schools. (Ord. BL2013-498 § 1, 2013)

2.224.020 Administration.

The program shall be administered under the supervision of the parks and recreation department. (Ord. BL2014-846 § 1, 2014; Ord. BL2013-498 § 1, 2013)

2.224.030 Eligibility—Use of funds.

A. Only such nonprofit organizations as satisfy the criteria adopted in Tennessee Code Annotated, Section 7-3-314, as the same may hereafter be amended, shall be eligible to receive grants through the program.

B. Grant funds awarded under the program must be used at school or community gardens for the benefit of children and/or senior citizens with an emphasis on contributing to healthy lifestyles/eating, addressing childhood obesity, eliminating food deserts, and/or promoting sustainable food sources.

C. Grant funds may be used for programming or supplies for the school/community garden. (Ord. BL2013-498 § 1, 2013)

2.224.040 Procedure for making grants.

A. Eligible nonprofit organizations shall complete an application on a form developed by the parks and recreation department setting forth the proposed use of funds. Such application form shall include, but not be limited to, the following information:

1. The name of the garden supervisor/coordinator, and whether the person serves in a paid or volunteer capacity;

2. The names of committee members if the garden(s) is/are to be operated by a committee;

3. A garden development and implementation schedule, including the items to be grown and a timeline for harvesting;

4. A plan for the ongoing maintenance of the garden and its long term stability;

5. A plan for the distribution of items harvested; and

6. A letter of support from community beneficiaries of the garden. If the garden is to be located on school property, this letter of support shall be from the school principal.

B. The parks director or his designee shall review all applications and shall make recommendations to the council regarding grant recipients.

C. Grants may be awarded to individual nonprofit organizations as a dollar-for-dollar match in an amount not less than two hundred fifty dollars nor more than five thousand dollars. Grant recipients shall be required to provide proof of the required matching funds before the metropolitan government grant funds are disbursed to the recipient.

D. All grants to nonprofit organizations under the program must be approved by the council by resolution in accordance with Section 5.04.070 of the Metropolitan Code.

E. All grant funds awarded to a nonprofit organization in a given fiscal year shall be expended by the organization not later than April 30. (Ord. BL2014-846 §§ 2, 3, 2014; Ord. BL2013-498 § 1, 2013)

2.224.050 Parks and recreation department—Powers and responsibilities.

A. The parks and recreation department shall have the authority to adopt and implement rules and regulations, not inconsistent with the chapter, which will effectuate the purposes of this chapter.

B. The parks and recreation department shall submit a report to the director of finance and metropolitan council not later than June 1 regarding the expenditure of grant funds in the current fiscal year. (Ord. BL2014-846 § 1, 2014; Ord. BL2013-498 § 1, 2013)

Chapter 2.226

TREE REPLACEMENT AND PROTECTION ON CERTAIN METRO PROPERTIES

Sections:

2.226.010	**Purpose.**
2.226.020	**Responsible agencies identified.**
2.226.030	**Covered trees identified.**
2.226.040	**Governance.**
2.226.050	**Tree review panel created.**
2.226.060	**Panel review and replacement standards.**
2.226.070	**Notification.**
2.226.080	**Enhanced tree requirements.**
2.226.090	**Violations.**
2.226.100	**Removal of or damage to covered trees.**
2.226.110	**Tracking and data collection.**

2.226.010 Purpose.

The Metropolitan Government of Nashville and Davidson County's ("metro government's") urban tree canopy is a utility that improves air quality, manages storm water, supports public health, provides economic benefits, mitigates the heat island effect, and increases the quality of life for Nashville's residents. Therefore, this utility should be managed as an asset. The metropolitan government will lead by example to preserve the tree canopy and pursue retention wherever possible. (Ord. BL2021-829 § 1, 2021)

2.226.020 Responsible agencies identified.

The metropolitan government conducts tree-related programs and initiatives through the departments of water and sewerage services, parks and recreation, codes administration, public works (designated in this chapter as the "Nashville Department of Transportation and Multimodal Infrastructure" or "NDOT"), General Services, Nashville Public Library, and planning within the metro government's boundaries ("responsible agencies"). (Ord. BL2021-829 § 1, 2021)

2.226.030 Covered trees identified.

These tree replacement and protection regulations apply to trees within the metro government's rights-of-way and to trees on the properties of the departments of water and sewerage services, parks and recreation, NDOT, general services, the Nashville Public Library (collectively, "covered trees"). Trees that are less than two inches in diameter at breast height, dead, diseased, listed as invasive by the Tennessee Invasive Plants Council, structurally damaged, potentially hazardous, Bradford Pear (Pyrus calleryana), or Ash (Fraxinus) species are not covered trees. (Ord. BL2021-829 § 1, 2021)

2.226.040 Governance.

Tree-related programs and initiatives shall be coordinated by the metropolitan department of water and sewerage services ("metro water services") urban forestry staff and a tree working group. The tree working group shall consist of key program staff selected by the department heads of the responsible agencies and shall convene monthly to coordinate and provide updates on tree-related policies and initiatives. The metro water services urban forestry staff will lead coordination and ensure communication with all responsible agencies' department heads, project staff, and relevant non-governmental partners. (Ord. BL2021-829 § 1, 2021)

2.226.050 Tree review panel created.

Covered trees shall be managed and preserved under the supervision of the metro tree review panel (the "panel"). The panel shall be comprised of representatives from the departments of water and sewerage services, parks and recreation, codes administration, NDOT, general services, planning, and the mayor's office. (Ord. BL2021-829 § 1, 2021)

2.226.060 Panel review and replacement standards.

The panel will review metropolitan government projects and land-management activities on metro government properties of the responsible agencies that include the removal of covered trees over ninety aggregate inches in diameter at breast height ("DBH") or of any single specimen covered tree over thirty inches in DBH. Projects subject to the tree density requirements of Chapter 17.28 shall comply with Section 2.226.080 of the Metropolitan Code and not this section. The removals of covered trees over ninety aggregate inches in DBH or of any single specimen tree over thirty inches in DBH will be subject to the replacement standards contained in this section. Covered trees that are less than six inches in DBH and/or located within a public utility easement will not count toward the aggregate total or the single specimen requirement. Covered trees located in the metro government rights-of-way will not count as removals under this section unless located in a planting strip of at least four feet in width measured from the road or curb to the sidewalk, or they are being removed for a new metro government sidewalk installation. This protocol will not apply to areas within metro parks that are (1) greenways or trails, (2) managed as grasslands or

mixed-grass meadows, (3) areas designated as protected natural areas in the Metro Parks Natural Resource Management Plan, or (4) impacted by infrastructure maintenance or repair. Metro parks will supply an annual report of the counts to the tree review panel on covered tree removals in these exempted areas for data and public information purposes. The panel will review the projects for compliance with the replacement standards and will pursue retention where feasible. The panel may provide a recommendation of an alternate plan to the department head of the responsible agency that is proposing the removal, or their designee. The tree replacement standards for all covered trees are as follows:

Replacement Standards	
Size of Tree Removed (DBH)	**Number of New Canopy Trees Required**
≤ 10 inches	1
10.1 to 15 inches	2
15.1 to 20 inches	3
Greater than 20.1 inches	4

If authorized as a substitute for canopy trees, understory trees shall be planted at twice the rate of canopy trees. Replacement trees shall be nursey stock, at least 2.0 inches DBH, and six feet tall. Responsible agencies can track trees planted on their properties or within the metro government right-of-way and may apply them to the replacements required under this section if the planting occurred within one year of the tree removal activity. (Ord. BL2022-1122 § 1, 2022; Ord. BL2021-829 § 1, 2021)

2.226.070 Notification.

Metro government tree removals governed by Section 2.226.060 will be noticed via onsite signage where legally permissible and by electronic communication a minimum of fourteen days prior to the work. The notification will contain the location of the removal; the number, species, and size of tree(s) to be removed; the replacement plan; and information on public comment submission. Public comments received shall be provided to the panel and to the department head of the responsible agency that is proposing the tree removal, or their designee. (Ord. BL2021-829 § 1, 2021)

2.226.080 Enhanced tree requirements.

Metro projects having tree density requirements pursuant to Chapter 17.28 of the Metropolitan Code shall have a twenty percent higher tree density requirement than private development. The urban forester with the department of codes administration will review projects for compliance with this standard. (Ord. BL2022-1122 § 2, 2022; Ord. BL2021-829 § 1, 2021)

2.226.090 Violations.

Each responsible agency shall take all actions necessary to ensure implementation of this chapter for all properties under that department's jurisdiction. Violations of this chapter shall be reported to the department head of the responsible agency, or their designee. Continued violations shall be reported to the mayor's office and metro council. (Ord. BL2021-829 § 1, 2021)

2.226.100 Removal of or damage to covered trees.

No private person or entity shall damage or remove a covered tree without the permission of the urban forester at codes, NDOT, or the metro government department, agency, board, or commission responsible for the property. Damage to and or removal of covered trees shall be subject to replacement or payment into the metro tree bank as determined by the urban forester at codes, NDOT, or the metro government department, agency, board, or commission responsible for the property. The number of replacement trees shall be determined by the replacement standards in Section 2.226.060. Replacement trees shall meet the standards for size, form, and quality set out in the latest edition of the American Standard for Nursery Stock (ANSI) Z60.1. The responsible party shall replace any required trees that die and replacement trees shall be installed at the earliest possible time within a planting season. Developments subject to Section 17.20.120, Chapter 17.37, and/or Chapter 17.24 of the Metropolitan Code are not governed by this section. (Ord. BL2021-829 § 1, 2021)

2.226.110 Tracking and data collection.

The metropolitan government will monitor its tree canopy and will complete and update a county-wide urban tree canopy study no less frequently than every five years, with more frequent analysis as conditions require. Metro water services urban forestry staff will develop and maintain an inventory of all street trees and potential tree-planting locations inside Nashville's Urban Zoning Overlay District. (Ord. BL2021-829 § 1, 2021)

Chapter 2.232

BULLYING PREVENTION

Sections:

2.232.010 Definitions.
2.232.020 Bullying prohibited.

2.232.010 Definitions.

For the purposes of this chapter "bullying" shall be defined as any severe, pervasive, or persistent act or conduct whether physical, electronic, or verbal that:

1. May be based on a person's actual or perceived race, color, ethnicity, religion, national origin, sex, age, marital status, personal appearance, sexual orientation, gender identity or expression, intellectual ability, familial status, family responsibilities, matriculation, political affiliation, genetic information, disability, source of income, or any other distinguishing characteristic, or on a person's association with a person or group with any of the actual or perceived foregoing characteristics; and

2. Can reasonably be predicted to:

a. Place the person in reasonable fear of physical harm to their person or property;

b. Cause a substantial detrimental effect on the person's physical or mental health;

c. Substantially interfere with the person's academic performance or attendance; or

d. Substantially interfere with the person's ability to participate in or benefit from the services, activities, programs, facilities, or privileges provided by an agency or contractor or agent thereof. (Ord. BL2020-454 § 1, 2020)

2.232.020 Bullying prohibited.

A. Acts of bullying, including cyberbullying, whether by a person, volunteers, or staff, are prohibited in all metropolitan government services, activities, programs, and facilities.

B. Retaliation against a person, volunteer, or staff member who reports bullying, provides information about an act of bullying, or witnesses an act of bullying is also prohibited.

C. All metropolitan government agencies and departments that provide services, activities, programs, and facilities to the public shall establish a clear policy for reporting, addressing, and preventing bullying as defined above. This policy shall include a requirement for annual training for all staff on said policy and on best bullying prevention practices.

D. The provisions of this ordinance shall not apply to the Metropolitan Nashville Public Schools, as T.C.A. § 49-6-4503 already requires each school district to adopt a policy prohibiting harassment, intimidation, bullying, and cyber-bullying.

E. The provisions of this section are intended to supplement, but not replace, the metropolitan government's existing workplace conduct policy, which includes guidelines, reporting, and other related procedures addressing anti-bullying efforts in the workplace. (Amdt. 1 to Ord. BL2020-454 § 1, 2020; Ord. BL2020-454 § 1, 2020)

Title 3

PERSONNEL

Chapters:

3.04	**Employee Residence Requirements**
3.05	**In-Line-Of-Duty Medical Treatment for Metropolitan Government Employees Who Are Not Regularly Employed**
3.06	**Hiring and Selection of Department Heads and Executive Directors**
3.08	**Metropolitan Employee Benefit System Generally**
3.12	**Membership**
3.14	**Domestic Partner Benefits**
3.16	**Contributions and Financing**
3.20	**Life Insurance Benefits**
3.24	**Medical Care Benefits**
3.28	**Disability Pensions—Division A**
3.29	**Disability Pensions—Division B**
3.30	**Plan Qualification**
3.32	**Pensions for Members with Credited Employee Service—Division A**
3.33	**Pensions for Members with Credited Employee Service—Division B**
3.36	**Pensions for Members with Fire and Police Credited Service—Division A**
3.37	**Pensions for Members with Fire and Police Credited Service—Division B**
3.40	**Minimum Benefits, Options, and Death Before Retirement**
3.44	**Life Insurance and Medical Care for Nonmembers**
3.48	**Social Security**
3.52	**Employee Classification and Compensation**
3.56	**Labor Policy**
3.60	**Employee Award Programs**
3.64	**Employee Assistance Program**

Chapter 3.04

EMPLOYEE RESIDENCE REQUIREMENTS

Sections:

3.04.010 **Employee residence requirements—Exceptions.**

3.04.010 Employee residence requirements—Exceptions.

A. All new employees of the metropolitan government, including employees of the board of health, board of hospitals and the board of education shall be residents of the State of Tennessee or become residents of the state within six months of employment as a prerequisite to employment with the metropolitan government. The residency requirement shall apply to all temporary, seasonal, civil service, non-civil service and professional employees of the metropolitan government. The residency requirement shall not apply to consultants or independent contractors employed by the metropolitan government nor to employees of the metropolitan government hired prior to June 20, 1978. Notwithstanding the forgoing provisions to the contrary, all employees of the holders of elected offices authorized or created by the Charter making in excess of one hundred thousand dollars per year shall be residents of Davidson County, Tennessee.

B. Should an employee desire to live outside the State of Tennessee, he shall apply to his respective civil service commission or, in the case of non-civil service employees, to his department head for a hardship waiver. The waiver shall be granted only in extraordinary situations involving the health, safety or welfare of the employee or a member of his immediate family. (Ord. BL2006-1179 § 1, 2006; Ord. 94-1078 § 2, 1994)

Chapter 3.05

IN-LINE-OF-DUTY MEDICAL TREATMENT FOR METROPOLITAN GOVERNMENT EMPLOYEES WHO ARE NOT REGULARLY EMPLOYED

Sections:

3.05.010	**Expense for treatment of accidental injury in the course of employment.**
3.05.020	**Administration of in-line-of-duty medical treatment.**
3.05.030	**Notice of injury.**
3.05.040	**Treatment of prior in-line-of-duty injuries.**
3.05.050	**Subrogation.**
3.05.060	**Limitation of chapter.**
3.05.070	**Board of education employees.**

3.05.010 Expense for treatment of accidental injury in the course of employment.

Any employee of the metropolitan government who is not regularly employed shall be entitled to medical treatment at the expense of the metropolitan government as set forth in this chapter, for accidental injury arising out of and in the course of employment. The injured employee shall be entitled to emergency medical treatment at the nearest medical facility at the expense of the metropolitan government. Any further treatment shall be furnished to the employee from a panel of medical providers established and authorized by the department of human resources. Any medical treatment paid by the metropolitan government under this chapter shall constitute an indemnity in lieu of all other claims of liability as may be claimed against the metropolitan government. The expense of medical treatment paid by the metropolitan government on behalf of any individual under this chapter shall not exceed the limits of liability set forth in the Tennessee Governmental Tort Liability Act, Tenn. Code Ann. section 29-20-101 et seq.

No medical treatment shall be paid by the metropolitan government for any injury which results directly from the employee's:

(1) Willful misconduct;

(2) Intentional self-inflicted injury;

(3) Intoxication;

(4) Illegal drug usage; or

(5) Willful failure or refusal to use a safety appliance. (Ord. BL2009-405 § 1, 2009)

3.05.020 Administration of in-line-of-duty medical treatment.

The in-line-duty-medical treatment addressed in this chapter for employees who are not regularly employed by the metropolitan government shall be administered by the department of human resources. The department of human resources shall determine whether an employee's injury qualifies as accidental injury arising out of and in the course of employment and whether an employee is eligible for medical treatment at the expense of the metropolitan government under this chapter. Decisions of the department of human resources under this chapter shall be final unless appealed by the employee to an appropriate court of competent jurisdiction. (Ord. BL2009-405 § 1, 2009)

3.05.030 Notice of injury.

No medical treatment shall be paid by the metropolitan government under this chapter unless notice of the injury is provided by the employee or the employee's representative to the department of human resources within ten days after the occurrence of the accident. (Ord. BL2009-405 § 1, 2009)

3.05.040 Treatment of prior in-line-of-duty injuries.

The expense of medical treatment for accidental injury arising out of and in the course of employment, which was sustained prior to the effective date of this chapter, shall be borne by the metropolitan government only if at the time the ordinance adopting this chapter was filed with the metropolitan council:

(1) The employee filed a request for payment of the medical expense with the department of human resources, the medical expense has not been paid, and the injury is otherwise a covered claim under this chapter; or

(2) Treatment of the injury at the expense of the metropolitan government is ongoing at the time the ordinance adopting this chapter was filed, and the injury is otherwise a covered claim under this chapter. (Ord. BL2009-405 § 1, 2009)

3.05.050 Subrogation.

When medical treatment is provided to an employee under this chapter for an in-line-of-duty injury, at the expense of the metropolitan government, and the injury was caused under circumstances creating a legal liability against some person other than the metropolitan government to pay damages, the injured employee shall have the right to receive benefits as provided herein, and such injured employee may pursue the employee's remedy by proper action in a court of competent jurisdiction against such person. Notice of the filing of such action shall be

provided by the employee or the employee's representative to the department of human resources. In the event of recovery against such third person by the injured employee by judgment, settlement or otherwise, the metropolitan government shall have a subrogation right against such recovery for the expenses of medical treatment. Such settlements or judgments shall be reported by the employee or the employee's representative to the department of human resources. (Ord. BL2009-405 § 1, 2009)

3.05.060 Limitation of chapter.

This chapter shall not establish eligibility or rights to any benefit provided by the metropolitan employee benefit system. (Ord. BL2009-405 § 1, 2009)

3.05.070 Board of education employees.

The provisions of this chapter shall not apply to employees of the metropolitan board of public education. In-line-of-duty medical care for non-teaching/non-certificated employees of the metropolitan board of public education who are not regularly employed shall be as authorized by the board of education. (Ord. BL2009-405 § 1, 2009)

Chapter 3.06

HIRING AND SELECTION OF DEPARTMENT HEADS AND EXECUTIVE DIRECTORS

Sections:

3.06.010 Hiring and selection of department heads and executive directors.

3.06.010 Hiring and selection of department heads and executive directors.

A. When a panel is used for the purposes of hiring or selecting the head of a department or executive director of a department, board, or commission, the workforce diversity manager of the human resources department, or a designee, must be included as a member of the panel.

B. When an external hiring firm is involved in the hiring or selection of the head of a department or executive director of a department, board, or commission, the workforce diversity manager of the human resources department, or a designee, must be included in the hiring and the selection process.

C. This section shall apply only to a department, board, or commission created pursuant to the Metropolitan Code of Laws. (Amdt. 1 to Ord. BL2022-1343 § 1, 2022; Ord. BL2022-1343 § 1, 2022)

Chapter 3.08

METROPOLITAN EMPLOYEE BENEFIT SYSTEM GENERALLY

Sections:

3.08.010	**General definitions.**
3.08.011	**Division A definitions.**
3.08.012	**Division B definitions.**
3.08.020	**System established—Application of former plan.**
3.08.030	**Intent and purpose of system.**
3.08.040	**Benefit board—Administration authority—Powers and duties.**
3.08.050	**Benefit board—Executive secretary.**
3.08.060	**Board members—Prohibited personal interests.**
3.08.080	**Prior service certificates.**
3.08.100	**Beneficiary payments—Minors and legally incompetent persons.**
3.08.110	**Insurer selection—Procedure—Plan approval by council required.**
3.08.120	**Investment committee—Powers and duties.**
3.08.130	**Trust funds—Established—Requirements.**
3.08.140	**Trust fund accounts—Established—Prior contributions.**
3.08.150	**Social security benefits.**
3.08.160	**Plan benefit payments—Conditions for approval.**
3.08.170	**Plan benefit payments—Cost-of-living increase—Division A.**
3.08.171	**Plan benefit payments—Cost-of-living increase—Division B.**
3.08.180	**Plan benefits exempt from taxation, execution or assignment, except as required by state or federal law.**
3.08.190	**Limitations of system provisions—Conflict with other systems.**
3.08.200	**Amendments to system provisions—Effect on benefits.**
3.08.210	**Termination of plans—By default.**
3.08.220	**Termination of plans—Procedure.**
3.08.230	**Change or error in records—Effect on payment received or contribution paid.**
3.08.240	**Attempt to defraud system prohibited—Legal proceedings—Penalty.**
3.08.250	**Firefighter health—Presumptions concerning impairment in course of employment.**
3.08.260	**Annual report to the council.**

3.08.010 General definitions.

The following definitions shall apply to both Division A and Division B.

For the purposes of Chapters 3.08 through 3.44, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Average Earnings.

1. "Average earnings," when calculating pensions under Chapters 3.32, 3.33, 3.36 and 3.37, means an arithmetic monthly average of a metropolitan employee's earnings during the period which contains the sixty consecutive months of credited service which produces the highest average. Periods during which the member is not credited with credited service will be disregarded for the purposes of determining whether months of credited service are consecutive. If a member has not been employed for a period which contains sixty months, then his average earnings will be based on his earnings during all months of employment with the employer for which credited service was earned. Notwithstanding the foregoing, credited service for periods of disability under Chapters 3.28 or 3.29 shall be disregarded for purposes of this section.

2. "Average earnings," when computing pensions under Chapters 3.28 or 3.29, means the arithmetic average of a metropolitan employee's earnings during the period which contains twelve consecutive months of credited service which produces the highest average. Months during which a member is not credited with full credited service will be disregarded for the purpose of determining whether months of credited service are consecutive. The earnings for any month shall be: (a) the actual earnings paid for the month in which the member is compensated for eighty or more hours of work, but while incurring in-line-of-duty injury leave time, the member's earnings will be at his full regular salary or rate of pay; or (b) the actual earnings paid for the month in which the member is compensated for less than eighty hours but for which the member has unauthorized leave without pay which when added to the hours actually compensated, equals eighty or more hours for the month. If a member has not been employed for a period

which contains twelve consecutive months, his average earnings will be based on his compensation during all the months of employment for which there is full credited service. Notwithstanding the foregoing, authorized unpaid leaves of absence shall be disregarded for purposes of this section if the authorized unpaid leave of absence produces a month for which the member is compensated for less than eighty hours of work.

3. The amendments made to this definition of "average earnings" by Ordinance 97-1018 shall have retroactive application to those disability or service pensions that have a benefit commencement date of January 1, 1996 or later. The amendments made to this definition of "average earnings" by Ordinance BL2013-550 shall have retroactive application to those disability or service pensions that have a benefit commencement date of October 1, 2013 or later.

"Average excess earnings" means the average of excess earnings determined for the same calendar years that average earnings are determined.

"Beneficiary" means the person last designated by the member in writing to the employee benefit board to receive such benefits, if any, as may be payable upon the death of such member.

"Board" means the employee benefit board created in accordance with Section 13.02 of the Metropolitan Charter.

"Correctional officer" means an eligible employee who is a correctional officer in the Davidson County sheriff's department as determined in accordance with the qualifications of a correctional officer prescribed by applicable rules and regulations of the civil service commission and having direct contact with inmates as a regular and necessary part of the employees duties and responsibilities.

"Credited employee service" means the sum of prior employee service and current employee service.

After July 1, 1986, if an employee subject to this plan terminates employment, and is entitled to payment of any retirement benefit under this plan, other than a refund of all or a portion of his contribution to the fund, he may elect prior to his termination of employment to receive service credit for that period of time spent in active military service in the Armed Forces of the United States, subject to a maximum of four years of total credit; provided, however, that the employee (1) was employed by metropolitan government immediately prior to entry into active military service and immediately returned to employment by metropolitan government upon discharge from such service, (2) was honorably discharged, and (3) that the employee does not receive retirement credit in any other Tennessee retirement system for his military service that results in a duplication of benefits.

As of January 1, 1998 any member that dies, who has taken FMLA leave within twelve months of the member's death, will receive a maximum of three months' credited service for the amount of time that the member was on approved family medical leave.

"Credited police and fire service" means the sum of prior police and fire service and current police and fire service.

After July 1, 1986, if an employee subject to this plan terminates employment, and is entitled to payment of any retirement benefit under this plan, other than a refund of all or a portion of his contribution to the fund, he may elect prior to his termination of employment to receive service credit for that period of time spent in active military service in the Armed Forces of the United States, subject to a maximum of four years of total credit; provided, however, that the employee (1) was employed by metropolitan government immediately prior to entry into active military service and immediately returned to employment by metropolitan government upon discharge from such service, (2) was honorably discharged, and (3) that the employee does not receive retirement credit in any other Tennessee retirement system for his military service that results in a duplication of benefits.

As of January 1, 1998 any member that dies, who has taken FMLA leave within twelve months of the member's death, will receive a maximum of three months' credited service for the amount of time that the member was on approved family medical leave.

"Current employee service" means all continuous uninterrupted service after April 1, 1963, of an eligible employee who is a member, excluding his current police and fire service.

"Current police and fire service" means all continuous, uninterrupted service after April 1, 1963, of an eligible employee during which time he is a fireman, policeman, sheriff's officer, or an emergency communications officer and is a member.

With regard to a member who was not a metropolitan employee on or after May 1, 2008, "current police and fire service" means all continuous, uninterrupted service after April 1, 1963, of an eligible employee during which time he is a fireman, policeman, or correctional officer and is a member.

"Dependent child" means a child of an eligible employee, whether adopted, natural, stepchild or foster child, who has not attained the age of nineteen and who is unmarried and dependent upon the eligible employee for support and maintenance; provided, however, that if

a dependent child has reached his nineteenth birthday, he still may qualify as a dependent child if he is under age twenty-three and is a full-time student at an accredited school or university. Provided, however, that for purposes of the medical plan, "dependent child" means and is defined in accordance with the document, as approved by the board, that describes the medical plan.

"Disabled member" means a member whose termination, as defined in this section, was because of disability in accordance with Sections 3.28.010 through 3.28.080 or Section 3.29.010 through 3.29.080 and is eligible to receive benefits in accordance with Sections 3.28.010 through 3.28.080 or Sections 3.29.010 through 3.29.080.

"Earnings" means, from and after January 1, 1987, the total cash compensation paid by the metropolitan government or by a predecessor government to a metropolitan employee for his personal services excluding all sums in excess of amounts he would have received in his regular position if he is on a leave of absence from his regular position, but including his full regular salary or rate of pay while he is incurring in-line-of-duty injury leave. However, earnings shall not include cash compensation paid to a metropolitan employee for services provided on or after December 1, 1998, to an entity or person other than the metropolitan government or an agency thereof pursuant to a contract between the metropolitan government and the person or entity by which the person or entity reimburses the metropolitan government for the metropolitan employee's compensation. Prior to January 1, 1987, only base pay shall be used to calculate earnings except that longevity pay shall also be included for purposes of calculating pensions granted from and after January 1, 1986.

"Earnings while disabled" means all compensation, gain or profit of a disabled employee who works or engages in any business or occupation.

"Eligible employee" means a metropolitan employee during any and all times that (1) he is not covered by or eligible for any benefit provided by any former plan or state retirement for county paid judges pension plan, (2) he is not covered by any pension plan for teachers established in accordance with Section 9.07 of the Metropolitan Charter, or (3) he is not covered under any other pension plan provided by or whose obligations have been assumed by the metropolitan government as required or permitted by the Metropolitan Charter.

"Emergency communications officer" means an eligible employee in the department of emergency communications during the time that the eligible employee holds the position of emergency telecommunication officer trainee, emergency telecommunication officer 1, emergency telecommunication officer 2, emergency telecommunication officer 3, emergency telecommunication officer 4, emergency telecommunication trainer, emergency telecommunication supervisor, or emergency telecommunication manager. This definition of "emergency communications officer" shall apply to a member who is a metropolitan employee on or after December 1, 2021.

"Employee of a predecessor government" means any employee of a predecessor government who was regularly employed by and performed personal services for such predecessor government, including any elected and appointed official of a predecessor government, and who became a metropolitan employee on April 1, 1963.

"Fiscal year" means the fiscal year adopted from time to time by the metropolitan government.

"Former plan" means the pension, retirement and benefit plan for policemen and firemen of the former City of Nashville, created in accordance with the provisions of Article 48 of Chapter 246 of the Private Acts of 1947 and all acts amendatory thereof; the pension, retirement and benefit plan for the city judge and civil service employees of the former City of Nashville, created in accordance with the provisions of Article 48 of Chapter 246 of the Private Acts of 1947 and all acts amendatory thereof; the retirement plan for officers and employees of the former county of Davidson, created in accordance with the provisions of Chapter 274 of the Private Acts of 1943 and all acts amendatory thereof, and a retirement or benefit plan for county paid judges and county attorneys.

"Foster child" means a child living in the residence of an eligible employee in accordance with "foster care placement," which means and is defined as the supervised adoption period prior to final adoption, as approved by a court of competent jurisdiction.

"Frozen earnings" means the average of monthly earnings of an eligible employee who has become a disabled employee in accordance with Sections 3.28.010 through 3.28.080 or Sections 3.29.010 through 3.29.080 for the twelve consecutive calendar months which precede the month in which his termination of employment as a metropolitan employee occurred. Provided, however, that the calculation of frozen earnings shall take into account all of the non-merit salary increases that have accrued to the position since the employee's termination as a metropolitan employee. In the event that a disabled employee's former position has been abolished or relegated to a lower pay classification, the civil service commission shall designate a comparable pay classification for the purpose of computing the disabled employee's non-merit salary increases in calculating frozen earnings.

"Fund" or "trust fund" shall refer to three separate trust funds defined in Section 3.08.130 established to provide benefits under Chapters 3.28 through 3.40 of the

system. Trust Fund A1 shall be earmarked to provide the benefits defined in subdivision 3 of the subsection defining "system" within this section, Trust Fund B to provide the benefits defined in subdivision 4 of that subsection, and Trust Fund C to provide the benefits defined in subdivision 5 of that subsection, and the provisions of Section 3.08.130 shall be interpreted to apply to each of these three funds separately.

"Interruption of service" means and shall be deemed to occur upon termination of a metropolitan employee; except, that an interruption of service shall not be deemed to occur in the event of an extended sick leave or leave of absence granted by any duly authorized metropolitan government official or any service, voluntary or involuntary, in the armed forces of the United States, provided the employee is entitled to reemployment under the provisions of any applicable state or federal law and that he does apply for reemployment with the metropolitan government and becomes a metropolitan employee within the time specified by law and in the manner and under the conditions prescribed by law; provided, that service shall not include any time that he is not a metropolitan employee.

"Member" means a metropolitan employee who has established credited service in the system and whose membership in the system has not ceased as provided in Section 3.12.050.

"Metropolitan employee" means any person, whether classified or unclassified, who is regularly employed on or after April 1, 1963, by the metropolitan government and is compensated in whole or in part by the metropolitan government for personal services performed for the metropolitan government, and shall include (1) any person who is an appointed official of the metropolitan government, (2) any person who is an official of the metropolitan government who is elected by popular vote, (3) any person who is regularly employed in the metropolitan government by an elected official of the metropolitan government, and (4) any person who is regularly employed in the service of the metropolitan government and who is appointed by an elected official of the metropolitan government. In all cases of doubt, the employee benefit board shall determine whether or not a person is a metropolitan employee, as defined herein.

"Metropolitan government" means the Metropolitan Government of Nashville and Davidson County, Tennessee, as authorized by referendum adopting the Metropolitan Charter on June 28, 1962, and as effective April 1, 1963, excluding the metropolitan transit authority and excluding the electric power board of the metropolitan government.

"Participant in a former plan" means any metropolitan employee who, on March 31, 1963, was covered under a former plan or then had a right to receive a benefit from a former plan.

"Pensioner" shall mean a disabled member who is receiving disability pension benefits pursuant to Chapters 3.28 or 3.29. "Pensioner" shall also mean a retired member who is receiving pension benefits pursuant to Chapters 3.32, 3.33, 3.36, or 3.37.

"Physician" means a legally licensed Doctor of Medicine or osteopathy.

"Policeman" means an eligible employee who is a police officer in the department of police, as determined in accordance with the qualifications of a police officer prescribed by applicable rules and regulations of the civil service commission. "Policeman" shall also include personnel employed by the department of parks and recreation designated as special police pursuant to Section 11.1005 of the Metropolitan Charter. An eligible employee in the department of police who is not a police officer shall not be deemed to be a policeman. A policeman shall not lose his standing by virtue of a voluntary transfer into a civilian position, once having established credited service as a policeman, provided written application to continue such designation is approved by the board. Such application filed with the board will only be approved by the board on a showing that the policeman has sustained a disability that prevents him from maintaining his position as a policeman, and stating that the policeman wants to move to a civilian position rather than take disability retirement.

"Predecessor government" means either the government of the City of Nashville or of the county of Davidson, or both, as the contract may require, as they existed prior to April 1, 1963.

"Prior employee service" means all service prior to April 1, 1963, of a member who was a metropolitan employee on April 1, 1963, whether such service is continuous or not, excluding all his prior fire and police service and excluding one-half of all service for which he was not covered under a former plan; provided, that any person who becomes a metropolitan employee after April 1, 1963, shall not be allowed credit for any service prior to his becoming an eligible employee.

Each metropolitan employee who was hired prior to January 1, 1972, and who first becomes a member as of that date shall receive full credit for service while he was covered under a former plan and shall be eligible to receive one-half credit for any service for which he was not covered by a former plan.

"Prior police and fire service" means all service prior to April 1, 1963, of a member who was a metropolitan employee on April 1, 1963, whether such service is

continuous or not, as a uniformed fireman or a uniformed policeman employed by a predecessor government, or as a uniformed, full-time employee of the sheriff's office of the former Davidson County; provided, that any person who becomes a metropolitan employee after April 1, 1963, shall not be allowed credit for any service prior to his becoming an eligible employee.

Each metropolitan employee who was a uniformed fireman or policeman and first became a member as of January 1, 1972, shall receive full credit for service while he was covered under a former plan and shall be eligible to receive one-half credit for any service for which he was not covered by a former plan.

"Retired member" means a member who is no longer a metropolitan employee and who is eligible to receive a pension provided in Chapters 3.32, 3.33, 3.36, 3.37 or 3.40.

"Service of a member" means the time that an eligible employee is employed by the metropolitan government or by a predecessor government, in accordance with this section, excluding (1) all the time during which he was or is covered by a retirement plan for teachers maintained in whole or in part by funds provided by any predecessor government or the state, and excluding (2) one-half of all time during which he was not covered by a former plan, and excluding (3) service of a member who is an eligible employee but who is prohibited by the Metropolitan Charter from being eligible for any pension provided by this system. "Service" shall be determined in years and full months with one month to be counted for any month in which his normal work week was at least twenty hours per week and one-half a month shall be counted for any month in which his normal work week was at least ten but not as many as twenty hours per week. No more than one month of credit shall be counted for any one calendar month.

In those instances where the employee is regularly employed on a nine- or a ten-month basis, and the employing agency has established the work year as being less than twelve months due to the nature of their work, e.g., board of education employees, metro action commission employees, and school crossing guards, those employees shall be entitled to receive twelve months' service credit for their work during each such full work year. If the employee works less than the full nine or ten month work year, the employee will only receive credit for the time actually worked.*

* It is the intent of the metropolitan county council that the previous paragraph shall have a retroactive application.

"Sheriff's officer" means an eligible Davidson County Sheriff's Office employee who is required to spend a majority of the workday engaged in direct inmate contact in a secured environment or an armed agent who is responsible for serving warrants, orders of protection, body attachments, or performing evictions. This definition of "sheriff's officer" shall apply to a member who is a metropolitan employee on or after May 1, 2008.

"System" means the metropolitan employee benefit system, comprising the following nine plans:

1. Plan for life insurance benefits as provided in Chapter 3.20, excluding 3.20.040, and such provisions of Chapters 3.08, 3.12 and 3.16 as apply to such benefits;

2. Plan for medical care benefits as provided in Chapter 3.24 and such provisions of Chapters 3.08, 3.12 and 3.16 as apply to such benefits;

3. Plan for disability benefits as provided in Sections 3.28.010 through 3.28.070 and such provisions of Chapters 3.08, 3.12 and 3.16 as apply to such benefits. This plan, intended to constitute a trust under Section 501(c)(9) of the Internal Revenue Code of 1954, as amended, is defined under the provisions of Sections 3.08.010, 3.08.020 through 3.08.040, 3.08.060, 3.08.080, 3.08.100 through 3.08.160, 3.08.180, 3.08.190, 3.08.210 through 3.08.240, Chapter 3.12, Chapter 3.16 and Sections 3.28.010 through 3.28.070, as these provisions apply to disability benefits defined in Sections 3.28.010 through 3.28.070, liabilities of which are covered by Trust Fund A.

a. The following provisions of the system do not apply to this plan:

— Section 3.12.010;

— Sections 3.16.010, 3.16.040;

— Chapters 3.20 and 3.24;

— Sections 3.28.080, Chapters 3.29, 3.32, 3.33, 3.36, 3.37 and 3.40.

4. Plan for pension benefits for credited employee service as provided in Section 3.28.080, Chapters 3.32 and 3.40. This plan, intended to be qualified under Section 401 of the Internal Revenue Code of 1954, as amended, is defined under the provisions of Chapters 3.08, 3.12 and 3.16, Section 3.28.080, and Chapters 3.32 and 3.40 as these provisions apply to benefits arising from credited employee service, the liabilities for which are covered by Trust Fund B.

a. The following provisions of the system do not apply to this plan:

— Section 3.08.010, definitions of "disabled member," "earnings while disabled," "prior police and fire service," "current police and fire service," "credited police and fire service," and "hospital";

— Sections 3.16.020, 3.16.040;

— Chapters 3.20 and 3.24;

— Sections 3.28.010 through 3.28.070;

— Chapters 3.29, 3.33, 3.36 and 3.37.

5. Plan for pension benefits for credited fire and police service as provided in Section 3.28.080, Chapters 3.36 and 3.40. This plan, intended to be qualified under Section 401 of the Internal Revenue Code of 1954, as amended, is defined under the provisions of Chapters 3.08, 3.12 and 3.16, Section 3.28.080, Chapters 3.36 and 3.40 as these apply to benefits arising from credited fire and police service, the liabilities for which are covered by Trust Fund C.

a. The following provisions of the system do not apply to this plan:

— Section 3.08.010, definitions of "disabled member," "earnings while disabled," "prior employee service," "current employee service," "credited employee service," "dependent child," "hospital," and "physician";

— Sections 3.16.020, 3.16.040;

— Chapters 3.20 and 3.24, Sections 3.28.010 through 3.28.070;

— Chapters 3.29, 3.32, 3.33 and 3.37.

6. Plan for hazardous duty death benefit, as defined in Section 3.20.040.

7. Plan for disability benefits for Division B as provided in Section 3.29.010 through 3.29.070 and such provisions of Chapters 3.08, 3.12 and 3.16 as apply to such benefits. This plan, as intended to constitute a trust under Section 5.01(c)9 of the Internal Revenue Code of 1954, as amended, is defined under the provisions of 3.08.010, 3.08.020 through 3.08.040, 3.08.060, 3.08.080, 3.08.100 through 3.08.160, 3.08.180, 3.08.190, 3.08.210 through 3.08.240, Chapter 3.12, Chapter 3.16 and Sections 3.29.010 through 3.29.070, as these provisions apply to disability benefits defined in Sections 3.29.010 through 3.29.070, liabilities of which are covered by Trust Fund A.

a. The following provisions of the system do not apply to this plan:

— Sections 3.12.010;

— Sections 3.16.010, 3.16.040;

— Chapters 3.20 and 3.24;

— Section 3.29.080, Chapters 3.28, 3.32, 3.33, 3.36, 3.37 and 3.40.

8. Plan for pension benefits for credited employee service as provided in Section 3.29.080, Chapters 3.33 and 3.40. This plan, intended to be qualified under Section 401 of the Internal Revenue Code of 1954, as amended, is defined under the provisions of Chapters 3.08, 3.12 and 3.16, Section 3.29.080, and Chapters 3.08, 3.12 and 3.16, Section 3.29.080, and Chapters 3.33 and 3.40 as these provisions apply to benefits arising from credited employee service, the liabilities for which are covered by Trust Fund B.

a. The following provisions of the system do not apply to this plan:

— Section 3.08.010, definitions of "disabled member," "earnings while disabled," "prior police and fire service," "current police and fire service," "credited police and fire service," and "hospital";

— Sections 3.16.020, 3.16.040;

— Chapters 3.20 and 3.24;

— Sections 3.29.010 through 3.29.070;

— Chapters 3.28, 3.32, 3.36 and 3.37.

9. Plan for pension benefits for credited fire and police service as provided in Section 3.29.080, Chapters 3.37 and 3.40. This plan, intended to be qualified under Section 401 of the Internal Revenue Code of 1954, as amended, is defined under the provisions of Chapters 3.08, 3.12 and 3.16, Section 3.29.080, Chapters 3.37 and 3.40 as these apply to benefits arising from credited fire and police service, the liabilities for which are covered by Trust Fund C.

a. The following provisions of the system do not apply to this plan:

— Section 3.08.010, definitions of "disabled member," "earnings while disabled," "prior employee service," "current employee service," "credited employee service," "dependent child," "hospital," and "physician";

— Sections 3.16.020, 3.16.040;

— Chapters 3.20 and 3.24; Sections 3.29.010 through 3.29.070;

— Chapters 3.28, 3.32, 3.33 and 3.36.

"Termination" means the termination of employment of a metropolitan employee. (Ord. BL2021-830 §§ 1, 2, 2021; Ord. BL2013-550 §§ 1—3, 2013; Ord. BL2012-261 § 7, 2012; Ord. BL2008-206 §§ 1, 2, 2008; Ord. BL2007-101 § 1, 2008; Ord. BL2003-1347 §§ 1, 2, 3, 2003; Amdt. 1 with Ord. 2001-775 § 5, 2001; Ord. 98-1426 § 1, 1998; Ord. 98-1369 § 1, 1998; Ord. 97-1018 §§ 4, 5, 1997; Ord. 96-540 § 1, 1996; Ord. 95-1452 §§ 1—14 and 16, 1995; Ord. 93-794 § 1, 1993; Ord. 92-159 §§ 1—4, 1992; Ord. 88-514 § 1, 1988; prior code § 32-1-1)

3.08.011 Division A definitions.

Definitions Applicable to Division A Only. For the purposes of Chapters 3.28, 3.32 and 3.36, the following words and phrases shall have the meanings given them by this section. These definitions will be in addition to the general definitions set out in Section 3.08.010 when construing Division A:

Ambulance Division Employees. Wherever in this plan for employee benefits the term "fireman" is used,

such term shall also include all uniformed employees of the ambulance division of the metropolitan department.

"Average base earnings" means the average of base earnings determined for the same calendar years that average earnings are determined.

"Base earnings" means that part of earnings in any calendar year determined in accordance with the following table:

Employee's Year of Birth	Base Earnings
1903 or earlier	$4,800.00
1904—1906	5,400.00
1907—1913	6,000.00
1914—1928	6,600.00
1929—1935	7,200.00
1936 or later	7,800.00

"Excess earnings" means that part of earnings in any calendar year which is in excess of the base earnings.

"Fireman" means an eligible employee who is in the uniformed fire services of any division of the department of fire of the metropolitan government in accordance with qualifications and requirements of the uniformed fire services of any division of such department of fire prescribed by applicable rules and regulations of the civil service commission. An eligible employee in the department of fire who is not in the uniformed fire services of any division of the department of fire shall not be deemed to be a fireman. (Ord. 96-540 § 2, 1996; Ord. 95-1452 § 17, 1995)

3.08.012 Division B definitions.

Definitions Applicable to Division B Only. For the purposes of Chapters 3.29, 3.33 and 3.37, the following words and phrases shall have meanings given them by this section. These definitions will be in addition to the general definitions set out in Section 3.08.010 when construing Division B:

"Fire fighter" means an eligible employee in the "uniformed fire services" of any division of the department of fire, including those persons in the ambulance division who are certified EMT's or paramedics. "Uniformed fire services" include those positions within the fire department dealing with fire suppression, fire prevention, fire training and fire inspection. Any questions as to whether an eligible employee will belong to the police and fire plan (Chapter 3.37) or the plan for credited employee service (Chapter 3.33) will be determined by the board. "Civilian positions" within the department shall not be deemed to be fire fighters. A fire fighter shall not lose his standing by virtue of a voluntary transfer into a civilian position, once having established credited service as a fire fighter, provided written application to continue such designation is approved by the board. Such applications filed with the board will only be approved by the board on a showing that the fire fighter has sustained a disability that prevents him from maintaining his position as a fire fighter, and stating that the fire fighter wants to move to a civilian position rather than take disability retirement.

Unreduced Retirement Age.

1. "Unreduced retirement age" means a member's age on his unreduced retirement date.

2. "Unreduced retirement age" for a member whose service has terminated means the age at which he would have attained his unreduced retirement age if his service had continued.

Unreduced Retirement Date.

1. "Unreduced retirement date," with respect to members with credited employee service, means the earlier of:

a. The date when his age last birthday plus his completed years of credited employee service equals eighty-five, but not before age sixty; and

b. The date when he reaches age sixty-five and completes five years of credited employee service.

2. "Unreduced retirement date," with respect to members with credited police and fire service, means the date when his age last birthday plus his completed years of credited police and fire service equals seventy-five, but not before age fifty-three nor after age sixty. (Ord. 95-1452 § 18, 1995)

3.08.020 System established—Application of former plan.

A. There is created and established, as of September 1, 1964, a system of employee benefit plans for officers and employees of the Metropolitan Government of Nashville and Davidson County to be known as the "metropolitan employee benefit system." The system is created pursuant to Article 13 of the Metropolitan Charter. All transactions of the system shall be in the name of the system.

B. Payment of benefits under any former plans shall be outside the scope of this system, and no interpretation or administrative act or ruling in connection with this system shall affect, relate to or otherwise be construed in any way to apply to any former plan or any benefit from such former plan to which any metropolitan employee may be entitled.

C. No metropolitan employee shall be eligible to receive any benefit from this system if he is eligible to receive any benefit from or is covered in any way by a former plan, notwithstanding any provision in this system to the contrary. (Prior code § 32-1-2)

3.08.030 Intent and purpose of system.

A. The metropolitan employee benefit system provides a program of benefits for members to provide for specific kinds of needs upon death, upon hospitalization and sickness and upon retirement because of disability or old age. The stated intent of the system is to provide a well-balanced program of such benefits and to have a system founded on concepts of sound actuarial principles in order that the system can, to as great an extent as possible, be considered sound as to benefits and costs in the future. It shall also be the stated intention, before amendments or changes are to be made to the system, that the financial effect of proposed changes on the actuarial soundness of the system be determined on the basis of competent actuarial, legal and other necessary advice as the board shall assemble and that such information be available to all interested parties.

B. It is the stated purpose that the system's (1) death benefits in the future provide benefits payable upon the death of the employee which are not inconsistent with group life insurance plans in general use by businesses and industries in Davidson County and (2) medical care benefits in the future provide a member a means of cushioning in a reasonable way the economic impact of medical care costs without his profiting because of any duplication of benefits and that the future level of medical care benefits be consistent with the general relationship of medical care benefits to prevailing cost in Davidson County of medical care at the inception of the system. The stated purpose of the retirement benefits, both for disability and old age, is to replace income and provide reasonable pensions to those members who have lost substantially their capacity to earn by reason of disability or old age. It is not the intention that the system provide a pension income to a metropolitan employee who contends disability, but who has not lost his power to work for compensable earnings or profits, except to the extent specifically provided in Sections 3.28.010 through 3.28.070 and 3.29.010 through 3.29.070. It is not the intention that the disability benefits of the system represent in any way an indemnity for a loss, whether or not such loss is suffered in the course of employment, except as provided in Sections 3.28.010 through 3.28.070 and 3.29.010 through 3.29.070. (Ord. 95-1452 § 19, 1995; prior code § 32-1-3)

3.08.040 Benefit board—Administration authority—Powers and duties.

A. The metropolitan employee benefit board shall administer, manage and coordinate the metropolitan employee benefit system in accordance with the provisions of the system, subject to and not inconsistent with Article 13 of the Metropolitan Charter. The board shall, as soon as practicable after adoption of the system by the metropolitan council, act as follows:

1. Meet with the legal counsel and actuarial consultants, as provided in Section 13.05(b) of the Metropolitan Charter, to coordinate and establish administrative details, forms and procedures to be followed in enrolling persons who are eligible to become members in the system in accordance with Chapter 3.12;

2. Select, in accordance with Section 3.08.110, an insurer or insurers to underwrite and administer the life insurance benefits and medical care benefits provided in Chapters 3.20 and 3.24, respectively, and execute any contract required;

3. Direct the preparation of and approve a booklet explaining the metropolitan employee benefit system in full detail, and make available in the pension office to metropolitan employees full information concerning a metropolitan employee's status and his rights concerning the system;

4. Act promptly to secure social security coverage for all eligible employees, in accordance with Section 3.08.150;

5. Adopt, from time to time, as it sees fit, actuarial and other tables necessary for the administration of the system.

B. The board shall be empowered to employ the services of investment consultants, and the services of others which, in the sole discretion of the board, may be necessary to maintain a soundly designed, administered and financed system.

C. The board shall be entitled to rely upon all tables, valuations, certificates and reports as furnished by any consultant or actuary, all opinions given by legal counsel of the board, and any advice of a qualified investment consultant. The board shall be fully protected with respect to any action taken or suffered by the board in good faith and reliance upon the advice or opinion of any such consultant, actuary, legal counsel or investment consultant, and all actions so taken or suffered shall be conclusive upon each of them and upon all members and other persons interested in the system.

D. The expenses incurred in the installation, administration and revision of the system, expenses of investment consultants, investment analysis, actuarial consultants, expenses incurred by the treasurer in the performance of his duties and all other proper charges and disbursements for the administration, design and financing of the system shall be paid from the trust fund, subject to the approval of the board, unless otherwise paid by metropolitan government.

E. 1. The board shall have jurisdiction over all voluntary benefit plans for employees of the metropolitan government who are subject to the jurisdiction of the board. "Voluntary benefit programs" means and is defined as any program to be offered to the employees of the metropolitan government, either through direct payment or payroll deduction, which provides a service, product or benefit that is made available to the employee by the employee paying one hundred percent of the cost of the service, product or benefit. Such services, products or benefits may include, but shall not be limited to, life, medical, dental, vision, disability and other forms of insurance, prepaid legal services, prepaid burial services, deferred compensation plans and other similar benefits.

2. Voluntary benefit programs shall be available to current employees and those persons receiving benefits under any pension system administered by the board.

3. All voluntary benefit programs shall be subject to the rules and regulations adopted by the board for the administration of such programs. The rules and regulations adopted by the board shall be filed with the metropolitan clerk as a public record. No voluntary benefit program shall be offered to metropolitan employees without the prior approval of the board. All current voluntary benefit programs shall be reviewed by the board, after the passage of the ordinance codified in this subsection, and shall be subject to recertification by the board.

4. Contributions by employees for any voluntary benefit programs approved by the board may be made by payroll deduction, if approved by the board, or be made by a direct payment to the provider. Contributions of individual employees shall not be collected on the premises of the metropolitan government. Any contributions collected by payroll deduction shall be remitted to the provider of the voluntary benefit program, as directed by the board, but remittances to any specific provider shall not be more frequent than twice a month unless agreed to by the supervisor of payroll, in writing.

5. No part of the cost of administration shall be borne by the board or by the metropolitan government, except the cost of administering payroll deductions. The board, with the assistance of the data processing division, or such other metropolitan departments as the board deems appropriate, shall establish startup costs or other administrative charges that may be incurred in adding any voluntary benefit program provider to the system. No provider may be added to the system until such startup costs or other administrative charges are paid in advance. Any additional charges incurred by the board or the metropolitan government shall be billed to the provider and paid within sixty days. Failure of the provider to pay the additional charges within sixty days shall be cause for the provider to be suspended from payroll deduction privileges until the additional charges are paid.

6. The board's rules and regulations shall provide for an annual accounting of contributions collected from employees or pensioners. The annual accounting shall include both payroll deduction and direct payment collections. Any provider failing to render such accounting shall have its payroll deduction privileges suspended until the accounting is made to the board. The annual accounting period shall be established by the board and shall be uniform in its application to all voluntary benefit program providers.

7. The board shall review each approved program on an annual basis and shall approve or disapprove the continued participation of each provider as of October of each year.

8. No voluntary benefit program shall be established by the board unless it provides that all metropolitan employees or pensioners who are eligible may participate therein.

9. In the event that the board determines that any such voluntary benefit program fails to meet any of the conditions set out herein, or fails to meet any conditions set out in the board's rules and regulations as approved by the board from time to time, the board shall withdraw its approval of such program, and thereafter contributions from metropolitan employees or pensioners shall no longer be collected by payroll deduction and such provider shall no longer be authorized to solicit participation of metropolitan employees or pensioners.

10. Voluntary benefit programs as defined in this subsection shall specifically exclude charitable organizations seeking approval for payroll deduction privileges. Jurisdiction over such charitable organizations, for payroll dedication purposes, shall be vested in the director of finance.

F. 1. Jurisdiction over flexible benefit plans under Section 125 of the Internal Revenue Code is placed under the board. The board shall have authority to develop such plans as are consistent with the Internal Revenue Code as it exists from time to time. The board shall have the authority to execute all necessary documents to qualify and administer such plans.

2. Upon the establishment of any flexible benefit plans by the board, the department of finance shall establish a separate account to be known as the "flexible benefit plan reserve savings account." To this account shall be transferred all funds that would otherwise have been paid as employer FICA contributions on that portion of the employees' earnings now subject to the flexible benefit deduction provided under Section 125 of the Internal Revenue Code for those employees participat-

ing in the flexible benefit plan. Transfers to the flexible benefit plan reserve savings account shall be on at least a quarterly basis.

3. The funds in the flexible benefit plan savings account shall be used for the following purposes:

a. To offset the expenses incurred in the installation, administration and maintenance of the flexible benefit plan or plans and all other charges and disbursements for the administration and design of the flexible benefit plans;

b. The balance of the flexible benefit plan reserve savings account, at the end of each fiscal year, shall be transferred to the self-insured portion of the employee medical benefit trust fund account.

G. 1. The board shall establish a "medical case management" program (hereinafter referred to as case management) to encourage and assist in the rehabilitation and retraining of disabled members, whether on disability pensions due to in-line-of-duty injuries or because of nonjob-related medical problems. The case management program may be operated by the board or by an organization not related to Metro but experienced in the operation of similar programs. The case manager shall be selected by the board.

2. The board shall have the authority to require participation in the rehabilitation program by a member or disabled member who, in the opinion of the board, and as documented by competent medical evidence either from (1) the member or disabled member's own medical physician or (2) through an independent medical examination authorized and paid for by the board, is physically and mentally able to participate in the program. The board shall have the authority to pay for such services. The board may terminate the disability pension of a disabled member who refuses to participate in the program, or who fails to complete the program and who has not provided proper medical justification to the board for failing to participate in or complete the rehabilitation or retraining program.

3. The program may, to the extent feasible, include the identification and case management of members who are not disabled but who, due to their utilization of in-line-of-duty "injury leave" benefits appear likely to qualify for disability benefits in the near future in the absence of early intervention of the case management concept. The board shall be responsible for developing the criteria to determine the identification of such persons and shall approve all such intervention or shall establish policies and procedures authorizing the board office to direct such intervention. Case management shall also be available to those members utilizing sick leave and likely to qualify for disability benefits but such use shall be on a voluntary basis.

4. All injuries to members participating in the system of benefits administered by the metropolitan employee benefit board shall be reported to the board under policies and procedures adopted by the board. The board shall set out its own form for reporting such injuries or may adopt the form used by the insurance and safety division for reporting injuries.

5. The board shall identify specific catastrophic type injuries that must be reported immediately to the board, by the department, upon notification to the department that such an injury has occurred.

6. The board shall have authority to enter into a contract with a "case manager" to work with the board in overseeing medical treatment plans, rehabilitation programs, and retraining programs for such injuries so that the member or disabled member shall receive continuity of treatment, rehabilitative services, retraining programs, and such other services as may be needed to decrease the likelihood that such individual will ultimately end up on or continue on a disability pension.

7. It is specifically the intent of this subsection that such services may be provided from funds provided directly by the general fund or the metropolitan government, or that the board in its discretion is authorized to use funds allocated to it under the employer contribution rate for pension purposes for disability benefits.

8. The board shall have authority to use the services of General Hospital, or such other service providers that it shall contract with to provide such services. It is hereby specifically authorized that the board shall have the authority to seek out services of other service providers and enter into contracts with them, provided that such services can be rendered at competitive prices.

H. The board is authorized to administer to police and fire employees wellness testing and education programs, to be conducted on-site, addressing weight control, blood pressure, smoking cessation, exercise programs and other health-related subjects, including health risk appraisal programs. The board shall be authorized to implement programs to provide early intervention into areas that are causing, or having the potential of causing, disability pensions, either medical or in-line-of-duty. The wellness and preventative care program shall be conducted in accordance with uniform policies and procedures adopted by the board.

I. Reserved. (Ord. BL2006-1232 § 1, 2006; Ord. 95-1452 §§ 20, 46, 1995; Ord. 95-1446 § 4, 1995; Amdt. 1 to Ord. 90-1165, 4/3/90; Ord. 90-1165 §§ 1—3, 1990; prior code § 32-1-4)

3.08.050 Benefit board—Executive secretary.

The board shall appoint an executive secretary and may enter into an employment contract with such person

for a period not exceeding four years, and at a compensation to be fixed by the board, subject to the pay plan structure established by the metropolitan civil service commission, which contract must be approved by resolution adopted by the metropolitan county council by twenty-one affirmative votes. The executive secretary shall be a person who has had at least four years' experience in the administration of employee benefits. (Amdt. 2 to Ord. 95-1452, 6/20/95; Ord. 95-1452 § 21, 1995; Amdt. 2 to Ord. 92-159, 2/4/92; § 7 of Amdt. 1 to Ord. 92-159, 2/4/92; Ord. 92-159 § 7, 1992; prior code § 32-1-4.1)

3.08.060 Board members—Prohibited personal interests.

A. No person on the board shall participate, directly or indirectly, in the gains or profits of any investment of the trust fund, except to the extent any person on the board may be a member or beneficiary of the system.

B. No person on the board shall participate, directly or indirectly, in commissions or compensation in any form from any insurance company or hospital service association which underwrites any of the benefits provided by the system, except to the extent any member of the board may be a member or a beneficiary of the system.

C. No person on the board shall, directly or indirectly, for himself or as an agent, use in any manner the funds or deposits of the system, except to make such payments therefrom as are authorized by the board, nor shall any person on the board become an endorser or surety of any type or an obligor for money loaned by or borrowed from the system. (Prior code § 32-1-9)

3.08.080 Prior service certificates.

A. As soon as practicable after September 1, 1964, the board shall determine the prior police and fire service and the prior employee service of each member who was a metropolitan employee on April 1, 1963, and shall issue to each such member a certificate showing such amounts of his prior service. If the board discovers that any amount of prior service recorded on a certificate is incorrect, a corrected certificate shall be issued promptly which shall revoke and supersede all certificates previously issued. Copies of such certificates shall become a part of the permanent records maintained by the board for the purpose of determining benefits to members or their beneficiaries. In establishing such records, the board may require, in its discretion, members, beneficiaries and other persons to submit affidavits as to any information which affects benefits payable to members or their beneficiaries. Upon the termination of a member, his certificate of prior service shall be void as of his date of termination.

B. Any member who first becomes a member as of January 1, 1972, pursuant to provisions of Section 3.12.030, shall similarly be furnished a certificate of prior service. (Prior code § 32-1-11)

3.08.100 Beneficiary payments—Minors and legally incompetent persons.

If any member or beneficiary is a minor or is, in the judgment of the board, otherwise legally incapable of personally receiving and giving a valid receipt for any payment due him hereunder, the board may, unless and until claim shall have been made by a guardian or conservator of such person duly appointed by a court of competent jurisdiction, direct that such payment or any part thereof be made to such person's spouse, child, parent, brother or sister, deemed by the board to have incurred expense for or assumed responsibility for the expenses of such person. Any payments so made shall be a complete discharge of any liability under the system for such payment. (Prior code § 32-1-17)

3.08.110 Insurer selection—Procedure—Plan approval by council required.

A. The board, together with actuarial and other consultants and legal counsel, shall prepare specifications for submission to insurers (insurance companies and hospital service associations) or organizations interested in insuring, providing or administering some or all of the benefits or services provided in Chapters 3.20 and 3.24 of the system. The board may provide the benefits described in Chapters 3.20 and 3.24 of the system through the medium of any sound financing vehicle widely used by employers of large numbers of employees, including conventional group insurance contracts or, in the case of medical care benefits provided in Chapter 3.24, through minimum premium group insurance contracts, self-insurance with administration by an insurance company as provided by Section 56-408 of the Insurance Law or through a health maintenance organization.

B. The board shall select an insurer to provide group life coverage for benefits provided in Chapter 3.20 and an insurer, administrator or health maintenance organization to provide medical care benefits or services provided in Chapter 3.24 and the board's decision shall be final. The board shall make its selection on the basis of low retention or administrative costs, the level of reserves required and the interest allowed thereon, the services to be provided and the general reputation and competence of the bidding organization.

C. Upon the selection of an insurer, administrator or health maintenance organization, the board shall be authorized and empowered to execute group or other contracts with such insurer or organization to provide coverage for benefits or services, as the case may be.

D. The board shall annually review the performance of each insurer that underwrites or administers a plan to furnish benefits or organization that provides services provided by the system and if the board determines that it is in the best interest of metropolitan government to resubmit specifications and select a new insurer, administrator or organization, it may do so in a manner consistent with this section.

E. The self-insured medical benefits plan shall be administered on a preferred provider (PPO)—nonpreferred provider (non-PPO) basis, with the term preferred provider meaning a preferred provider organization (PPO) which may include hospitals, physicians, and other health care providers which have entered into an agreement with the board or one of its agents, to provide services under the plan pursuant to a negotiated pricing arrangement. The aggregate maximum lifetime benefit shall be unlimited in regard to services performed by preferred providers (PPO) within the network and one million dollars for services provided by non-preferred providers (non-PPO) in the network. PPO benefits shall be paid at eighty percent of reasonable and customary charges and non-PPO benefits at sixty percent of reasonable and customary charges. The Employee Benefit Board may temporarily modify these percentages by exception through an affirmative vote to provide incentives for participants in special programs or provisions under this plan. Such exceptions to this section will expire one year after board adoption unless and until affirmed by another positive vote by the board.

The annual out-of-pocket maximum for individual PPO coverage shall be one thousand dollars and for family coverage two thousand dollars. The individual out-of-pocket non-PPO maximum shall be five thousand dollars and family shall be ten thousand dollars.

In addition to the self-insured medical benefits plan that is administered on a PPO/non-PPO basis, the Employee Benefit Board is authorized to adopt other types of self-insured medical plan design structures. Each such self-insured medical plan design structure shall be adopted by the Benefit Board only following an actuarial determination of the effect of the particular plan on the soundness of the system's design of benefits as well as its effect on the cost of the system.

All other terms and conditions of the self-insured plans shall be as approved by the board.

No additional self-insured medical benefits plan authorized by the section shall become effective until such plan is approved by resolution of the council receiving twenty-one affirmative votes. Beginning January 1, 2007, the employee benefit board shall submit a quarterly report to the budget and finance and personnel committees of the council providing information regarding other self-insured medical benefits plans being reviewed by the commission and the progress being made toward implementation of an additional plan or plans.

*F. No later than January 1, 2014, the board shall implement Medicare Part D or an Employer Group Waiver Plan for eligible pensioners. (Ord. BL2021-781 § 2, 2021; Ord. BL2012-237 § 5, 2012; Amdt. 1 to Ord. BL2006-1180 § 1, 2006; Ord. BL2006-1180 § 1, 2006; Ord. BL2005-530 § 1, 2005; Ord. 97-857 §§ 1—3, 1997; Ord. 95-452 §§ 22, 23, 1995; prior code § 32-1-5)

***Editor's note—**Ord. BL2021-781 § 2, passed July 6, 2021, states: Effective January 1, 2023, Section 3.08.110 of the Metropolitan Code is hereby amended by deleting subsection F in its entirety.

3.08.120 Investment committee—Powers and duties.

The investment committee shall be constituted as provided in Section 13.04 of the Metropolitan Charter, and shall regulate and determine all matters dealing with investment of the trust fund, and shall have full and complete control over all investments, subject to the Metropolitan Charter and this system. Not in limitation, but in amplification of the powers and duties of the investment committee, the investment committee shall be authorized and empowered:

A. To invest and reinvest the principal and income of the trust fund in its discretion, subject to the terms of the Metropolitan Charter, Section 3.08.130 and this section, in all stocks, bonds, notes, debentures, mortgages, equipment trust certificates, investment trust certificates, insurance company group annuity contracts and in such other property, real or personal, investments and securities of any kind, class or character, whether income producing or not, as the investment committee may deem suitable for the trust fund, including units of any common trust fund of any bank or trust organized under the laws of the state or the United States and qualified as state depositories. In making such investments and reinvestments, the investment committee shall be restricted to properties and securities authorized for investment by trustees or other fiduciaries under any present or future law; 3.08.120

B. To keep in its discretion such portion of the trust fund in cash or cash balances as the investment committee may, from time to time, deem to be in the best interest of the trust;

C. To sell, exchange, convey, transfer or otherwise dispose of any property held by it, by private contract or at public auction, and no person dealing with the investment committee shall be bound to see to the application of the purchase money or to inquire into the validity, expediency or propriety of any such sale or other disposition;

D. To vote or to refrain from voting upon any stocks, bonds or other securities; to give general or special proxies or powers of attorney with or without power of substitution; to exercise any conversion privileges, subscription rights or other options and to make any payments incidental thereto; to consent to or otherwise participate in corporate reorganizations or other changes affecting corporate securities and to delegate discretionary powers and to pay any assessments or charges in connection therewith, and generally to exercise any of the powers of an owner with respect to stocks, bonds, securities or other property held in the fund;

E. To make, execute, acknowledge and deliver any and all documents of transfer and conveyance and any and all other instruments that may be necessary or appropriate to carry out the powers herein granted;

F. To employ suitable agents and counsel, and to pay their reasonable expenses and compensation;

G. To borrow money from time to time for the purposes of the trust on such terms and conditions as the board, in its sole discretion, may deem advisable, and for any sum so borrowed to issue its promissory note and to secure the repayment thereof by pledging all or any part of the funds;

H. To, by means of written instructions, at any time, direct managers, custodians or the metropolitan treasurer to make or not to make any investment or to dispose or not dispose of any investment, which the investment committee would be authorized to make or dispose of as provided herein. The manager, custodian or metropolitan treasurer shall promptly comply with any such instructions and shall be fully protected in acting upon such instructions of the investment committee, and shall not be liable for any depreciation or loss resulting to the trust fund from any action to be taken or not taken pursuant to any such instructions of the investment committee or because of the failure of the investment committee to give instructions. (Ord. 95-1452 § 24, 1995; prior code § 32-1-7)

3.08.130 Trust funds—Established—Requirements.

A. For benefits provided by this system other than those in Chapters 3.20 and 3.24, all contributions by metro and by eligible employees shall be deposited in three separate trust funds:

1. "Metropolitan Government Trust Fund A" (hereinafter called Fund A) is the fund which provides the benefits defined in Sections 3.28.010 through 3.28.070, inclusive, and 3.29.010 through 3.29.070, inclusive, to which the appropriate amount of employer contribution defined in Section 3.16.050 shall be paid for Division A and Division B.

2. "Metropolitan Government Trust Fund B" (hereinafter called Fund B) is the fund which provides pensions and death benefits for credited service other than credited fire and police service for Division A and Division B.

3. "Metropolitan Government Trust Fund C" (hereinafter called Fund C) is the fund which provides pensions and death benefits for credited fire and police service for Division A and Division B.

Such trust funds shall be exclusively for the benefit of members and beneficiaries and shall be separate and apart from all other assets and funds of metropolitan government.

B. Registered securities of the funds may be registered in nominee or street names of the institutions managing the funds. Every change in registration by reason of sale or assignment of securities or any other method of transfer of securities shall be accomplished by an authorized signature of the committee; and such securities shall be delivered by the manager, custodian or metropolitan treasurer when directed, in writing, by the committee. The committee shall certify to the manager, custodian or metropolitan treasurer the authorized signatures of the committee and signatures of other persons who may sign directions of the committee to the manager or custodian. The manager, custodian or metropolitan treasurer shall be entitled to rely on the last received such certification of signatures until written notice to the contrary from the committee has been received. All disbursements from the funds shall be made subject to written direction by the committee through a document bearing the signature of a person authorized by the committee to give such directions. The committee shall not be liable for the making, retention, or sale of any investment or reinvestment made by it, nor for any loss to or diminution of the funds, except due to its own gross negligence, wilful misconduct, or lack of good faith. (Ord. 96-540 § 3, 1996; Ord. 95-1452 §§ 25, 26, 27, 1995; prior code § 32-1-6)

3.08.140 Trust fund accounts—Established—Prior contributions.

A. Fund A shall have a retirement allowance account and Funds B and C shall have a member contribution account and a retirement allowance account. The member contribution account shall be the account to which each member's contributions for pensions provided in Section 3.16.030 shall be credited. From this account shall be paid any refund of a member's contribution for pensions due upon his termination. At the time of a member's termination, his account balance shall be transferred to the appropriate retirement allowance account if a refund of his pension contributions is not then payable. Pension contributions by a member who is an eligible employee shall be payable each payroll period subsequent to his becoming a member and shall be deposited in the appropriate trust fund and credited to his individual account which shall be a subsidiary account of the member's contribution account. Benefits shall be paid out of the appropriate trust fund.

B. Each member who has transferred from a former plan as of January 1, 1972, pursuant to Section 3.12.030, as amended, shall have a record set up in his name by the board to which shall be posted the amount of his prior contributions to a former plan. Each member as of any January 1st, commencing January 1, 1972, who then has three or more years of credited service shall have credited to his individual account interest applied to the amount of his individual account balance as of the preceding January 1st. The rate of interest shall be three percent per year or such higher rate as the board shall have declared.

C. A separate insurance account shall be maintained by the metropolitan government into which shall be paid monthly employee contributions for medical care benefits, together with contributions by the metropolitan government in accordance with Sections 3.16.010 and 3.16.040. In the case of insured benefits the monthly premiums required shall be paid promptly to the insurer. In the case of self-insured benefits there shall be paid each month to a special bank account an amount estimated by the administrator to be needed to meet benefit payments in the ensuing month. (Prior code § 32-1-8)

3.08.150 Social security benefits.

A. All eligible employees who are members shall be covered by social security. Each eligible employee who has made an election to transfer to the metropolitan employee benefit system, pursuant to Section 3.12.030, effective as of January 1, 1972, shall be covered for social security benefits commencing on that date or on the earliest date thereafter that such coverage is possible; provided, that he is eligible for social security coverage pursuant to all applicable state and federal laws and requirements.

B. The mayor of metropolitan government or the board, as the case may be, shall be authorized and empowered to execute any agreement or modification of an existing agreement and to take all other actions as may be necessary to accomplish such social security coverage upon recommendation of the board. All such action shall be accomplished as expeditiously as possible. Such agreement or modification of an agreement shall provide that no social security taxes of any sort shall be payable in respect of any service of a member prior to the date social security coverage becomes effective. If for any reason an employee is not eligible for social security coverage pursuant to state or federal law, he shall not be eligible to transfer into the metropolitan system and his election shall be null and void. (Prior code § 32-1-10)

3.08.160 Plan benefit payments—Conditions for approval.

Before any benefit payable from the trust fund can be paid, all conditions applicable to the payment of the benefit shall be met, written application for the benefit shall be presented to the board in such form and manner as the board shall determine and the payment of the benefit shall be approved and authorized by the board; provided, that if a member is not entitled to any benefit upon his termination as a metropolitan employee, other than a refund of his pension contributions, no application is necessary, and the payment of such refund shall be automatic. If any pension benefit provided in Chapters 3.32 or 3.36 is less than twenty dollars per month, the board, in its discretion, may pay the actuarially equivalent value of such benefit in one lump sum, or in such other manner as the board may determine. (Prior code § 32-1-12)

3.08.170 Plan benefit payments—Cost-of-living increase—Division A.

The provisions of this section shall apply only to those members who are covered under Division A of the system.

A. Each person receiving a benefit, pursuant to Chapters 3.32 and 3.36, or under an option in lieu of such benefit, shall be entitled to receive an escalation of such benefit in accordance with this section. An escalation, added to any previous total escalations of benefit, shall become effective on January 1st of each year commencing with January 1, 1985; provided, that:

1. The benefit has commenced to be paid prior to January 1st for which an escalation is to be effective, or in the case of a disability pension that converts to a

service pension due to the occurrence of a disability pensioner's sixty-fifth birthday in the month of December, commences to be paid on January 1st;

2. The amount of escalation shall be limited to an amount equal to the percentage of increase in the Consumer Price Index to the nearest one-half percent for the twelve months ending on the September 30th in the calendar year which precedes the calendar year for which the escalation shall apply; and

3. The total amount of escalation to be applied for a calendar year shall not exceed five percent.

B. The amount of escalation, if any, shall be computed on the basis of the initial amount only of the monthly benefit paid under the system and is not compounded from year to year; but if the amount of monthly benefit paid, exclusive of any escalation, changes either upward or downward, such as may be provided under an option, the amount of total escalation shall change correspondingly, so that the ratio of total monthly escalation before such change to total monthly escalation after such change is the same as the ratio of the monthly benefits before such change to the monthly benefits after such change, but otherwise, any benefit, once escalated, shall never decrease.

C. The amendments to subsection (A)(1) of this section made by Ordinance 97-1018 shall have a retroactive application date of December 1, 1996. (Amdt. 1 with Ord. 97-1018 §§ 1, 3 (part), 1997; Ord. 95-1452 §§ 28, 29, 1995; prior code 32-1-20.1)

3.08.171 Plan benefit payments—Cost-of-living increase—Division B.

The provisions of this section shall apply only to those members who are covered under Division B of the system.

A. Each person receiving a benefit, pursuant to Chapters 3.33 and 3.37, or under an option in lieu of such benefit, shall be entitled to receive an escalation of such benefit in accordance with this section. An escalation, added to any previous total escalations of benefit, shall become effective on January 1st of each year commencing with January 1, 1997; provided, that:

1. The benefit has commenced to be paid prior to January 1st for which an escalation is to be effective, or in the case of a disability pension that converts to a service pension due to the attainment of the disability pensioner's unreduced retirement age in the month of December, commences to be paid on January 1st;

2. The amount of escalation shall be based upon the Consumer Price Index for the twelve months ending on the September 30th in the calendar year which precedes the calendar year for which the escalation shall apply; and

3. In determining the cost of living increase, the first percent of increase in the Consumer Price Index since the last escalation was granted shall not be taken into consideration. The amount of escalation shall be eighty percent of the next five percent of increase in the Consumer Price Index since the last escalation was granted. The amount of escalation shall be to the nearest one-half percent of increase, subject to a maximum escalation in any one calendar year of four percent.

B. The amount of escalation, if any, shall be computed on the basis of the initial amount only of the monthly benefit paid under the system and is not compounded from year to year; but if the amount of monthly benefit paid, exclusive of any escalation, changes either upward or downward, such as may be provided under an option, the amount of total escalation shall change correspondingly, so that the ratio of total monthly escalation before such change to total monthly escalation after such change is the same as the ratio of the monthly benefits before such change to the monthly benefits after such change, but otherwise, any benefit, once escalated, shall never decrease.

C. The amendments to subsection (A)(1) of this section made by Ordinance 97-1018 shall have a retroactive application date of December 1, 1996. (Amdt. 1 with Ord. 97-1018 §§ 2, 3 (part), 1997; Ord. 95-1452 § 30, 1995)

3.08.180 Plan benefits exempt from taxation, execution or assignment, except as required by state or federal law.

A. Except as provided in Section 3.08.180 or as required by state or federal law, all benefits accrued or accruing to any member under the system, the contributions by members as well as by the metropolitan government and all other assets of the trust fund are and shall be exempt from any state, county or municipal tax and shall not be subject to execution, attachment, garnishment or any other legal process whatsoever, nor shall any assignment thereof be enforceable in any court; except, that levy of execution granted by a court of competent jurisdiction may issue against any of the assets described above in the event that a member does not repay social security taxes advanced for him by the metropolitan government in accordance with the provisions of Section 3.08.150.

B. The system will honor claims presented under a qualified domestic relations order ("QDRO") as provided in T.C.A. Section 26-2-105. A QDRO is defined in section 414(p) of the Internal Revenue Code, subject to

the limitations set forth in this subsection B. In addition, such order must apply only to benefits provided under one or more of the following plans within the system:

(i) The plan for pension benefits for credited employee service as provided in section 3.28.080, Chapters 3.32 and 3.40;

(ii) The plan for pension benefits for credited fire and police service as provided in section 3.28.080, Chapters 3.36 and 3.40;

(iii) The plan for pension benefits for credited employee service as provided in section 3.29.080, Chapters 3.33 and 3.40; or

(iv) The plan for pension benefits for credited fire and police service as provided in section 3.29.080, Chapters 3.37 and 3.40.

C. If a QDRO pertains to a member who has not commenced receiving benefits at the time the QDRO is received by the board, the alternate payee under said QDRO will begin receiving a portion of the benefits otherwise payable to the member, as specified by the order, at the time the member commences benefits. If a QDRO pertains to a member who is already receiving benefits under the plan at the time the QDRO is received by the board, the alternate payee shall receive a portion of the payments being made to the member, as specified by the order, at the time the order is determined by the board to be a QDRO that complies with T.C.A. Section 26-2-105. In no event will the alternate payee be allowed to change the payment method or the timing of the payments.

D. As provided in T.C.A. Section 26-2-105, the system shall honor orders for assignment of support issued under T.C.A. Section 36-5-501. (Ord. BL2016-328 §§ 1, 2, 2016; Ord. BL2015-68 § 1, 2016; prior code 32-1-15)

3.08.190 Limitations of system provisions—Conflict with other systems.

Nothing contained in the system shall be deemed to give any member or metropolitan employee the right to be retained in the employment of the metropolitan government or to interfere with any established process by which the metropolitan government may at any time hire, supervise or discharge any metropolitan employee, regardless of the effect on him as a member. Nothing in the system shall be in conflict with the metropolitan government's system of personnel administration; and the powers and duties of the civil service commission shall not be affected in any way by this system. (Prior § 32-1-13)

3.08.200 Amendments to system provisions—Effect on benefits.

Any amendment or termination of any provision of this system shall be made only following an actuarial determination of its effect on the soundness of the system's design of benefits as well as its effect on the cost of the system, and disclosure of such information to all interested persons. No amendment or repeal of a provision of this system shall affect in any way the benefits then accrued or being paid to members, retired members, disabled members or beneficiaries or benefits based on service completed prior to the date of such amendment or repeal, except as provided in Section 3.08.220; provided, that in determining such accrued benefits of members, average earnings, average base earnings, average excess earnings and service shall be determined as of the date of the amendment or repeal, as the case may be. (Prior code § 32-1-18)

3.08.210 Termination of plans—By default.

In the event of termination or complete discontinuance of contributions under any of the plans defined in subdivisions 3, 4 or 5 of the subsection defining "system" in Section 3.08.010, the provisions of Section 3.08.220 shall apply. (Prior code 32-1-20)

3.08.220 Termination of plans—Procedure.

A. In the event any one or all of the plans defined in subdivisions 3, 4 or 5 of the subsection defining "system" in Section 3.08.010 are terminated in their entirety, the board shall prepare a list of all members, retired members, disabled members and beneficiaries, showing for each, as of the date of such termination, the following:

1. For each retired member, disabled member or beneficiary receiving benefits, the amount and terms of payment of his pension;

2. For each member entitled to a deferred pension as provided in Sections 3.32.040 and 3.36.040, the amount and terms of payment of such pensions;

3. For each member not entitled to a deferred pension, the amount of his accrued pension computed as of the date of such termination in the same manner as set forth in Sections 3.32.030(A) and 3.36.030(A), and the terms of payment of such pensions for a member shall be in accordance with those sections, unless modified by a previous election of an option as provided in Chapter 3.40;

B. The benefits shown on the list in subsection A of this section will then be separated into three separate lists showing the benefits arising separately under each

of the three trust funds. Each of these lists will then be separated into "priority classes" for each fund separately as follows:

1. Fund A.

a. Priority Class A. Pensions for disabled members and benefits payable on the death of a disabled member under Section 3.28.070.

2. Funds B and C.

a. Priority Class A. Pensions for members who have reached their sixty-fifth birthdays, pensions for retired members who have reached their sixty-fifth birthdays, and pensions for retired members and for beneficiaries and benefits for all deceased members.

b. Priority Class B. For persons not in Priority Class A pensions for members, retired members who are receiving benefits and members entitled to deferred benefits.

c. Priority Class C. For persons not in Priority Classes A and B, benefits for all other members and beneficiaries.

C. The priority classes listed in subsection B of this section shall be observed separately for Funds B and C respectively. The board will then arrange for the liquidation of all assets held in each fund and prepare a statement of the liquidation value of the assets of such fund. The board will then arrange for the application separately of the assets of each of the Funds A, B and C respectively to purchase annuities from an insurance company or companies selected by the board, to provide in full, if such assets are sufficient to do so, the benefits in Priority Class A for each fund separately. In the case of Funds B and C, if such assets are not sufficient to purchase one hundred percent of benefits in Priority Class A, they shall be applied in full to purchase such uniform percentage as can be purchased. If the assets of any fund are more than sufficient to purchase one hundred percent of the benefits in Priority Class B, the remainder shall be applied in the same manner to purchase all or a uniform percentage of the benefits in Priority Class C. If the remaining assets in any of the three funds are more than sufficient to purchase one hundred percent of the benefits in Priority Class C, the remainder shall revert back to the metropolitan government. Upon completion of the steps specified above, the plan involved shall be considered terminated and no member or beneficiary shall have any right or claim to benefits under this system.

D. In the event of planned termination, the benefit of any highly compensated active or former employee is limited to a benefit that is nondiscriminatory under Internal Revenue Code Section 401(a)(4). (Ord. 95-1452 § 31, 1995; prior code § 32-1-19)

3.08.230 Change or error in records—Effect on payment received or contribution paid.

A. If any change in records or error results in any member or beneficiary receiving from the system more or less than he would had been entitled to receive had the records been correct or had the error not been made, the board, upon discovery of such error shall correct the error by adjusting, as far as practicable, the payments in such manner that the benefits to which the member or beneficiary was correctly entitled shall be paid. In the event a member or beneficiary receives more pension benefit than he was entitled to receive, the board shall collect, by way of reducing pension payments or through a lump sum repayment, only the amount overpaid during the one-year period prior to discovery by the benefit board of such change in records or such error which resulted in the pension overpayment. In the event a member or beneficiary receives less pension benefit than he was entitled to receive, the board shall reimburse, by way of increasing pension payments or in a lump sum payment, only the amount underpaid during the six-year period prior to discovery by or notice to the benefit board of such change in records or error which resulted in the underpayment of the pension benefit to the member or beneficiary. Notwithstanding the foregoing, the correction of errors resulting in an underpayment of a pension, made in calculating a disability or service pension awarded from and after January 1, 1987, and until January 1, 1997 shall not be subject to the six-year limitation. Correction of errors made in computing pensions for persons receiving a disability pension and converting to a service pension from and after January 1, 1984, and until January 1, 1997, which resulted in an underpayment of pensions shall also not be subject to the six-year limitation.

B. If the change in records or error results in any member contributing to the system more or less than should have been contributed had the records been correct or had the error not been made, the board, upon discovery of such error, shall correct the error by adjusting, as far as practicable, the contribution payable by the member so that the total contributions paid shall equal the amount payable had the records been correct or had the error not been made.

C. Repayment of any amount overpaid to any member or beneficiary may be waived by the board where such overpayment was made through error committed by the board's staff and the board determines that the member or beneficiary:

1. Was without fault or knowledge of the error;

2. Did not participate in or induce the additional payment;

3. Had no way under the circumstances to know or, by the exercise of reasonable diligence, to know that an overpayment had been made; and

4. Would, due to repayment, be deprived of income required for ordinary and necessary living expenses. No such waiver shall be granted if it is determined that such waiver would, if granted, adversely affect the actuarial soundness of the metropolitan benefit system; provided further, that no waiver shall be final or take effect until the same shall have been approved by resolution of the metropolitan council.

D. Nothing in this section shall be construed to affect or limit the authority of the metropolitan government to collect all sums gained in any claim or action arising under Section 3.08.240 of the Metropolitan Code of Laws. (Amdt. 1 with Ord. 96-540 § 4, 1996; prior code § 32-1-14)

3.08.240 Attempt to defraud system prohibited—Legal proceedings—Penalty.

No person shall knowingly and wilfully make any false statement or shall falsify or permit to be falsified any records of the system, in any attempt to defraud the system in any manner. The metropolitan government shall have the right to bring appropriate legal proceedings, both civil and criminal, against such person for his commission of any act which is a cause of action under the civil or criminal laws of this jurisdiction which falls within the coverage of this section. Upon his conviction in a criminal proceeding or upon the rendition of a judgment against him in a civil proceeding, in either case having been rendered by a court having jurisdiction of the parties and the subject matter, such person shall forfeit all amounts, rights and benefits which he would otherwise be entitled to receive under the provisions of the system. (Prior code § 32-1-16)

3.08.250 Firefighter health—Presumptions concerning impairment in course of employment.

A presumption is hereby established that any impairment of health of a firefighter caused by the disease of cancer resulting in hospitalization, medical treatment, or any disability, shall be presumed (unless the contrary be shown by competent medical evidence) to have occurred or to be due to accidental injury suffered in the course of employment. Any such condition or impairment of health which results in death shall be presumed (unless the contrary be shown by competent medical evidence) to be a loss of life in the line of duty, and to have been in the line and course of employment, and in the actual discharge of the duties of his position, or the sustaining of personal injuries by external and violent means or by accident in the course of employment and in the line of duty. Provided, however, that such firefighter shall have successfully passed a physical examination prior to such claimed disability, or upon entering upon his metropolitan government employment, and such examination fails to reveal any evidence of the condition of cancer.

For the purposes of this section, the term firefighter shall mean any regular and full-time employee of the metropolitan government who is required to extinguish and control fires or fire-related incidents and other employees of the fire department who are required to perform their duties under and in a toxic environment. (Ord. 91-1683 §§ 1, 2, 1991)

3.08.260 Annual report to the council.

Not later than December 31 of each year, the employee benefit board shall provide a written report to the metropolitan council containing the following information:

A. The annual required contribution and the actual contribution made to the metropolitan government pension plans made for the previous fiscal year.

B. The most recent 'actuarial valuation report' of pension plans including all attachments (such as the assumptions used) and a summary of the key plan provisions.

C. If not shown in the actuarial valuation report, the following demographic and financial information for the police department personnel:

1. The total number of personnel.
2. The average age of personnel.
3. The average years of service.
4. The average salary paid to police department personnel.
5. The total number of police pensioners including the terminated vested and surviving spouses along with the total monthly or annual benefit amounts.
6. Actuarial accrued liability for active pensioners, terminated vested, disability pensioners and service pensioners in pay status.
7. Normal cost of the police pensioners within the metropolitan government pension system. (Ord. BL2006-1096 § 1, 2006)

Chapter 3.12

MEMBERSHIP

Sections:

3.12.010	**Application for membership—Excludable impairments.**
3.12.020	**Eligibility and participation—Conditions.**
3.12.030	**Eligibility and participation—Transfer from former plan.**
3.12.031	**Metropolitan employee benefit system—Division A and Division B.**
3.12.040	**Continuation of membership.**
3.12.050	**Termination of membership.**
3.12.060	**Change in eligibility status—Effect on participation.**

3.12.010 Application for membership—Excludable impairments.

A. Each person shall, as a condition precedent to becoming a member, make written application to the board by filing a completed form, designated, "Application for Membership—Metropolitan Employee Benefit System." The form shall be supplied by the board and shall contain such information as the board may require.

B. The board may at any time delete from any application an excludable impairment and it shall not thereafter be reinstated; provided, that if a member established to the satisfaction of the board that he has not incurred medical expenses to an excludable impairment endorsed on his application for ten years after becoming a member, such excludable impairment shall no longer apply, and the member shall thereafter be entitled to full coverage for benefits provided in Chapter 3.24 and Sections 3.28.010 through 3.28.080. (Ord. 92-159 § 10, 1992; prior code § 32-1-21)

3.12.020 Eligibility and participation—Conditions.

Each person who first becomes a metropolitan employee after, but not on, April 1, 1963, shall, as a condition of employment, become a member of the system as of the first day of the month next following completion of six full calendar months of current service. This section shall not apply to any employee who becomes eligible to participate in the state retirement for county paid judges pension plan and elects to do so. (Ord. 92-159 § 11, 1992; prior code § 32-1-22)

3.12.030 Eligibility and participation—Transfer from former plan.

A. Each person who is a metropolitan employee on April 1, 1963, and who was a participant in a former plan, may voluntarily elect in writing to transfer his participation from such former plan and become a member of the system as of April 1, 1963, subject to written application to transfer received by the board on or before November 15, 1964. Each person who is a metropolitan employee on April 1, 1963, and was not a participant in a former plan may voluntarily elect to become a member of the system as of April 1, 1963, subject to written application to participate received by the board on or before November 15, 1964.

B. In the event such employee does not apply as provided in this section on or before November 15, 1964, then his right to apply shall terminate on November 16, 1964. A member of such former plan who voluntarily elects to transfer to the system in accordance with this provision shall cease to be a participant of the former plan and shall have no further rights under such former plan, and all contributions made by him after April 1, 1963, under a former plan shall be transferred to the trust fund, and all his contributions standing to his credit on March 30, 1963, to which he would have been entitled as a refund if he were to have then terminated, shall be transferred to the trust fund. All such amounts transferred to the trust fund shall be credited to his individual account in the member's contribution account.

C. If such a member dies, retires or terminates his employment prior to the date social security coverage is effective for him, he shall be eligible to receive from the system benefits in the same manner and amount as though he had not transferred from the former plan. After the date social security coverage is effective for such member, he shall have no right thereafter to any benefit except in accordance with the system.

D. Each person who is a metropolitan employee on January 1, 1971, and who was then a participant in a former plan or was not a member of any plan may voluntarily elect to transfer his participation to become a member of the metropolitan system as of January 1, 1972, subject to receipt by the board of his written election on or before such date, prior to January 1, 1972, as determined by the board. (Prior code § 32-1-23)

3.12.031 Metropolitan employee benefit system—Division A and Division B.

A. As of July 1, 1995, the "system" of benefits as defined in Section 3.08.010 shall be divided into Division A and Division B as provided herein. All eligible

employees with an effective hire date of July 1, 1995 or later shall only be eligible to be participants in Division B.

B. Each person who is a metropolitan employee as of June 30, 1995, and who qualifies to be a member of Division A of the system, may voluntarily elect in writing to transfer his participation from Division A to Division B as of January 1, 1996, subject to written application approved by the board. The written application to transfer to Division B must be received by the board before January 1, 1996.

C. In the event a member who qualifies to transfer from Division A to Division B does not provide written application prior to January 1, 1996, his right to apply shall terminate as of January 1, 1996. A member of Division A who voluntarily elects to transfer to Division B in accordance with this provision shall cease to be a participant in Division A and shall have no further rights under Division A. All contributions made by such transferring employee prior to January 1, 1996 shall be transferred to Division B. All such amounts transferred shall continue to be credited to the individual account in the member's contribution account for Division B.

D. Nothing in the ordinance codified in this section shall impair or diminish the rights and privileges of members, retired members, or survivors remaining in Division A, and such rights and privileges shall continue without impairment as obligations and liability of the metropolitan government. (Ord. 96-540 § 5, 1996; Amdt. 1 to Ord. 95-1452, 6/20/95; Ord. 95-1452 § 32, 1995)

3.12.040 Continuation of membership.

Once a metropolitan employee becomes a member, he shall continue to be a member as long as he is a metropolitan employee, and he cannot cease to be a member while he is a metropolitan employee. No member shall be eligible to receive any benefits provided under Chapters 3.32, 3.33, 3.36, 3.37 or 3.40 during the time that he is a metropolitan employee. This section shall not apply to any employee who becomes eligible to participate in the state retirement for county paid judges pension plan and elects to do so. (Ord. 95-1452 § 33, 1995; prior code § 32-1-24)

3.12.050 Termination of membership.

A. Upon a member's termination in the metropolitan government, he shall continue to be a member, but in no case shall he be entitled to be covered for benefits provided in Chapters 3.20, 3.24 and Sections 3.28.010 through 3.28.080 and Sections 3.29.010 through 3.29.080; provided, that he shall cease to be a member upon:

1. Withdrawal from the appropriate trust fund of his employee contributions for pensions, regardless of the length of his service;

2. Death, unless a beneficiary is entitled to receive a benefit from the appropriate trust fund;

3. Termination of the member at any time with prejudice, where "prejudice" means the termination of a member as a result of (a) his conviction by a court of competent jurisdiction of embezzlement or larceny of public funds or property, (b) malfeasance in office, or (c) the forcing of a member to make restitution of any funds or properties similarly taken by the member which resulted in his misconduct or termination. Any member who withdraws membership from the metropolitan employee benefit plan to participate in the state retirement for county paid judges pension plan shall continue to remain eligible for the benefits provided in Chapters 3.20, 3.24 and Section 3.28.090.

B. A retired member shall not be entitled to receive medical benefits until the retired member begins receiving pension benefits pursuant to Chapters 3.32, 3.33, 3.36, or 3.37. Once the retired member becomes a pensioner, he shall be entitled to receive medical benefits and may continue to receive medical benefits unless he ceases to be a member pursuant to subparagraphs 1. through 3. immediately preceding this subsection B.

C. Notwithstanding any other provisions of the system to the contrary, a retired member who became a metropolitan employee on or after January 1, 2013, or was rehired on or after January 1, 2013 and had not otherwise become vested for a pension benefit under Section 3.32.040, 3.33.040, 3.36.040, or 3.37.040 prior to the date of rehire, shall be entitled to receive medical benefits only if the member was eligible to begin receiving a normal or early retirement pension under Section 3.32.020, 3.32.030, 3.33.020, 3.33.030, 3.36.020, 3.36.030, 3.37.020, or 3.37.030 at the time of the member's employment termination. (Amdt. 1 to Ord. BL2012-237 § 6, 2012; Ord. BL2012-237 § 6, 2012; Ord. BL2007-101 § 2, 2008; Ord. 95-1452 §§ 34, 35, 1995; prior code § 32-1-25)

3.12.060 Change in eligibility status—Effect on participation.

A. If a member ceases to be an eligible employee but continues to be a metropolitan employee, he shall leave his employee contributions for pensions in the appropriate trust fund and continue to be a member, but shall not thereafter be entitled to participate in benefits provided in Chapters 3.20, 3.24 and Sections 3.28.010

through 3.28.080 and Sections 3.29.010 through 3.29.080, and he shall, during such time that he is not an eligible employee, make no contributions to the system whatsoever.

B. If any metropolitan employee who is not an eligible employee becomes an eligible employee, he shall thereupon contribute to the system and participate in all benefits provided by the system if he then has six months of service under the system; or he shall enter the system as provided in Section 3.12.020. Provided, any member who becomes eligible to participate in the state retirement for county paid judges pension plan and elects to transfer to the state retirement for county paid judges pension plan shall be allowed to withdraw his contributions or pension from the fund; further, such employee shall remain entitled to participate in the benefits provided in Chapters 3.20, 3.24 and Section 3.28.090. (Ord. 95-1452 § 36, 1995; prior code § 32-1-26)

Chapter 3.14

DOMESTIC PARTNER BENEFITS*

Sections:

3.14.010	**Definitions.**
3.14.020	**Establishing a domestic partnership.**
3.14.030	**Benefits.**
3.14.040	**Termination of a domestic partnership.**
3.14.050	**Tax liability.**
3.14.060	**Adoption of rules and regulations.**
3.14.070	**Severability.**

3.14.010 Definitions.

As used in this chapter, the following terms shall have the meanings ascribed to them in this section:

"Basic living expenses" means the cost of basic food and shelter. The individuals need not contribute equally or jointly to the cost of these expenses as long as they agree that both are responsible for the costs.

"Declaration of domestic partnership" means a form provided by the metropolitan department of human resources that officially recognizes a domestic partner relationship when signed by domestic partners. By signing it, two persons attest, under penalty of perjury, that they both meet all of the requirements of domestic partners as provided herein.

"Domestic partners" means two adults who meet all of the following requirements:

1. Both adults have chosen to share one another's lives in an intimate and committed relationship of mutual caring that is intended to be lifelong;
2. Both adults currently share a primary residence;
3. Both adults have shared a primary residence for the preceding three hundred sixty-five days;
4. Both adults are jointly responsible for basic living expenses, as demonstrated by a signed declaration of financial interdependence and by providing three of the following as proof of joint responsibility:

a. Joint ownership of a primary residence or joint tenancy of a residential lease;

b. Copy of a utility (water, gas, or electric) invoice listing both domestic partners;

c. Joint ownership of an automobile;

d. Joint bank or credit account;

e. Joint liabilities (e.g. credit cards or loans, etc.);

f. A will or trust designating the domestic partner as beneficiary;

g. A retirement plan or life insurance policy beneficiary designation form designating the domestic partner as beneficiary;

h. A signed durable power of attorney to the effect that the employee and the domestic partner have granted powers to one another;

i. Copies of each domestic partner's driver's license that indicates the same address;

j. Other acceptable proof of joint financial responsibility as determined by the department of human resources.

5. Both adults have been jointly responsible for living expenses during the preceding three hundred sixty-five days; and
6. Neither adult is in a lawful marriage recognized by the State of Tennessee or is in another domestic partnership.

"Domestic partnership" means a relationship conferring benefits described in Section 3.14.030 upon domestic partners who have signed a declaration of domestic partnership as provided in this chapter.

"Share a primary residence" means that two persons share the same primary living quarters; however, it is not necessary that the legal right to possess the living quarters be in both of their names. (Ord. BL2014-779 § 1, 2014)

3.14.020 Establishing a domestic partnership.

A. Two persons may establish a domestic partnership by submitting a signed declaration of domestic partnership to the department of human resources, which shall maintain such declaration on file and give the two persons a copy showing that such declaration was filed.

B. Persons prohibited from marrying in the state of Tennessee as a result of degrees of relationship under T.C.A. § 36-3-101 are likewise prohibited from entering into a domestic partnership under this chapter. (Ord. BL2014-779 § 1, 2014)

3.14.030 Benefits.

To the extent permitted by applicable law, and unless prohibited by a contractual agreement between the metropolitan government and an insurance provider at the time of enactment of this section, benefits that are available to domestic partners and their dependent children shall be identical to those benefits in the system available to spouses of members and their dependent children. Such benefits include, but are not limited to, insurance coverage and pension benefits. The submission of a domestic partnership declaration is understood to be a qualifying event for purposes of enrolling a domestic

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***Editor's note—**Ord. BL2014-779, § 2, states: The domestic partner benefits afforded pursuant to this ordinance shall be initially offered as part of the annual enrollment period for an effective date of January 1, 2015.

partner and their dependent children in a benefit plan, provided that the enrollment of domestic partners and their dependent children shall be subject to the same initial enrollment and annual enrollment requirements applicable to the spouses and dependent children of employees. After the initial enrollment created by the domestic partner declaration, the domestic partner and dependent children of the domestic partner shall be subject to the same enrollment and disenrollment requirements applicable to the spouses and dependent children of employees. (Ord. BL2014-779 § 1, 2014)

3.14.040 Termination of a domestic partnership.

A. A domestic partnership terminates when at least one of the domestic partners no longer qualifies as a domestic partner as that term is defined in Section 3.14.010 of this chapter.

B. If a domestic partnership ends, the employee must submit written notice to the human resources department within thirty calendar days after the termination of the domestic partnership. The notice must be dated and signed under penalty of perjury. The employee must also send a written copy of the notice to his or her former domestic partner by certified mail. (Ord. BL2014-779 § 1, 2014)

3.14.050 Tax liability.

Since a domestic partnership is not a legally recognized relationship by the U.S. Internal Revenue Service, an employee will be taxed on benefits provided to his or her domestic partner, unless the domestic partner is otherwise considered the employee's dependent for tax purposes. The employee shall be solely responsible for paying these taxes. Employees should seek independent tax advice in connection with any benefits provided to a domestic partner and their dependent children pursuant to this chapter. (Ord. BL2014-779 § 1, 2014)

3.14.060 Adoption of rules and regulations.

The metropolitan employee benefit board shall have the authority to adopt rules and regulations necessary to implement the provisions of this chapter, provided that such rules and regulations are consistent with the express provisions contained herein. Such rules and regulations may include criteria for determining when a domestic partnership is terminated in accordance with the provisions of this chapter. (Ord. BL2014-779 § 1, 2014)

3.14.070 Severability.

Should any court of competent jurisdiction declare any section, clause, or provision of the ordinance codified in this chapter to be unconstitutional, such decision shall affect only such section, clause or provision so declared unconstitutional, and shall not affect any other section, clause, or provision of the ordinance. (Ord. BL2014-779 § 1, 2014)

Chapter 3.16

CONTRIBUTIONS AND FINANCING

Sections:

3.16.010	**Contributions—Generally.**
3.16.020	**Employee contributions—Medical care and life insurance.**
3.16.030	**Employee contributions—Pensions.**
3.16.040	**Metropolitan government contributions—Medical care and life insurance.**
3.16.050	**Metropolitan government contributions—Pensions.**

3.16.010 Contributions—Generally.

A. Contributions by members to the system who are eligible employees or pensioners shall include medical care contributions and dental care contributions. Such contributions shall be payable in accordance with this chapter. Contributions by members shall be paid by payroll deductions. The financial requirements of the system for all benefits, including pension benefits, disability benefits, life insurance benefits and medical care benefits or services shall be determined by the board in accordance with this chapter. Pension contributions shall be paid into Fund B or Fund C as the case may be. Life insurance contributions and medical care contributions shall be paid into the insurance account.

B. In the case of self-insured medical care benefits or services provided by a health maintenance organization, the financial requirements as to the amount of monthly employee or pensioners contributions and contributions by the metropolitan government shall be determined by the board with the advice of the board's consulting actuary and other consultants, including the contributions estimated to be required in each fiscal year or portion of each fiscal year to meet the expected cost of benefits together with the maintenance of an adequate reserve in the insurance account to cover fluctuations in the amount of benefits or cost of services from month to month and any anticipated increase in the cost of medical care benefits or services in each fiscal year or portion of each fiscal year. The investment committee of the board, constituted as provided in Section 13.04 of the Metropolitan Charter, shall be authorized and empowered under the authority described in Section 3.08.130 of this title to invest such portion of the insurance account as the board may direct. The amount of such financial requirements shall be included in the annual budget and tax levy ordinances of the metropolitan government as provided in Section 13.05(f) of the Metropolitan Charter. (Ord. BL2007-101 §§ 3, 4, 2008; Ord. 2001-776 § 1, 2001; Ord. 92-159 § 12, 1992; prior code § 32-1-27)

3.16.020 Employee contributions—Medical care and life insurance.

A. Only covered members who are eligible employees or pensioners and are covered for medical care benefits in accordance with Chapter 3.24 shall pay employee contributions or pension deductions for medical care benefits for each payroll or pension period during which he is covered for such benefits. The board shall establish, in its discretion, a contribution rate for life insurance benefits, a contribution rate for medical care benefits, and a contribution rate for dental care benefits for covered members.

B. Effective July 1, 1979, the metropolitan government shall contribute one hundred percent of the contribution rate established for life insurance benefits and the covered employee will not be required to make any contribution for life insurance coverage.

C. 1. Effective July 1, 1979, the metropolitan government shall contribute seventy-five percent of the contribution rate established for medical care benefits and the covered employee and disabled member receiving disability benefits pursuant to Chapters 3.28 or 3.29 shall contribute twenty-five percent of the contribution rate established for medical care benefits.

2. For a retired member who became a metropolitan employee prior to January 1, 2013, the metropolitan government shall contribute seventy-five percent of the contribution rate established for medical care benefits and the covered retired member shall contribute twenty-five percent of the contribution rate established for medical care benefits. This subsection C.2. shall not apply to a member who ceases employment with the metropolitan government prior to the vesting of the member's pension pursuant to the provisions of section 3.32.040, 3.33.040, 3.36.040, or 3.37.040, and who is then rehired on or after January 1, 2013. The contribution rate for a member who ceases employment with the metropolitan government prior to the vesting of the member's pension under section 3.32.040, 3.33.040, 3.36.040, or 3.37.040, and who is then rehired on or after January 1, 2013, shall be determined in accordance with subsection C.3.

3. For a retired member who became a metropolitan employee on or after January 1, 2013, the contribution rate shall be as follows:

(i) The metropolitan government shall contribute seventy-five percent of the contribution rate established for medical care benefits for a retired member with at

least twenty years of credited employee service and the covered retired member shall contribute twenty-five percent of the contribution rate established for medical care benefits.

(ii) The metropolitan government shall contribute seventy percent of the contribution rate established for medical care benefits for a retired member with nineteen but less than twenty years of credited employee service and the covered retired member shall contribute thirty percent of the contribution rate established for medical care benefits.

(iii) The metropolitan government shall contribute sixty-five percent of the contribution rate established for medical care benefits for a retired member with eighteen but less than nineteen years of credited employee service and the covered retired member shall contribute thirty-five percent of the contribution rate established for medical care benefits.

(iv) The metropolitan government shall contribute sixty percent of the contribution rate established for medical care benefits for a retired member with seventeen but less than eighteen years of credited employee service and the covered retired member shall contribute forty percent of the contribution rate established for medical care benefits.

(v) The metropolitan government shall contribute fifty-five percent of the contribution rate established for medical care benefits for a retired member with sixteen but less than seventeen years of credited employee service and the covered retired member shall contribute forty-five percent of the contribution rate established for medical care benefits.

(vi) The metropolitan government shall contribute fifty percent of the contribution rate established for medical care benefits for a retired member with fifteen but less than sixteen years of credited employee service and the covered retired member shall contribute fifty percent of the contribution rate established for medical care benefits.

(vii) The metropolitan government shall contribute twenty-five percent of the contribution rate established for medical care benefits for a retired member with less than fifteen years of credited employee service and the covered retired member shall contribute seventy-five percent of the contribution rate established for medical care benefits.

4. The contribution rates set forth in this subsection C. may be modified by ordinance adopted by the metropolitan council.

D. The metropolitan government shall contribute one hundred percent of the contribution rate for individual coverage for dental care benefits for all eligible employees and pensioners. Eligible employees and pensioners shall have the option of carrying such additional coverage as offered by the board for eligible dependents but all such costs shall be borne one hundred percent by the covered member and no contribution shall be made by the metropolitan government for the additional coverage.

E. Such benefits shall become effective as established under the respective contracts as approved by the board. Employee contributions shall commence as established by board policy. All contributions paid by the employee shall be by payroll deduction, as directed by the board in coordination with the department of metropolitan finance.

(Ord. BL2018-1255 § 1, 2018; Ord. BL2013-544 § 1, 2013; Amdt. 1 to Ord. BL2012-237 § 7, 2012; Ord. BL2012-237 § 7, 2012; Ord. BL2007-101 §§ 5—8, 2008; Ord. 95-1452 §§ 37, 38, 1995; amended during 10/94 supplement; Ord. 92-159 §§ 13, 14, 1992; prior code § 32-1-28)

3.16.030 Employee contributions—Pensions.

A. Effective January 1, 1974, each member who is an eligible employee and is covered for pensions in accordance with Sections 3.28.010 through 3.28.080 and Chapters 3.32 and 3.36 of this title shall pay employee contributions for pensions which, for each calendar year, shall be the sum of subdivisions 1 and 2 as follows:

1. Three percent of earnings subject to social security tax; and

2. Six percent of earnings not subject to social security tax.

B. The amount of any member's employee contributions for pensions payable in any payroll period shall be computed, consistent with the provisions of this section, to the extent deemed administratively feasible, and in a manner determined by the board. Employee contributions for pensions shall be payable by a member after and not before he has completed six months of service. Employee contributions for pensions made by a member who was a metropolitan employee on March 30, 1963, shall be payable from April 1, 1963; except, that no such contributions shall be payable in respect of any payroll after April 1, 1963, for which contributions were paid under a former plan by a metropolitan employee. A member's employee contributions for pensions shall be payable for the months of "back service," determined as the number of months of service after April 1, 1963, and after he has completed six months of service, but before the date of his first pensions contribution to the system. Payment of such "back service" contributions shall be made by doubling his employee contributions for pensions in each payroll period commencing with his first pension contributions to the system and thereafter until he has contributed for as many months of "back service."

C. Employee contributions for pensions made by a member who was a metropolitan employee on January 1, 1972, and became a member as of that date shall be payable commencing from that date. The provisions of this section shall not apply to any employee who becomes eligible to participate in the state retirement for county paid judges pension plan and elects to do so.

D. As of January 1, 1987, no member, who is a present eligible employee, and no future member of the system shall be required to make an "employee contributions for pensions" payment on earnings earned for work performed on or after January 1, 1987.

E. Effective January 1, 1987, the metropolitan government shall assume responsibility for the "employee contributions for pensions" previously provided for under this section. Such contributions shall be the sum of subdivisions 1 and 2 as follows:

1. Three percent of earnings subject to social security tax; and

2. Six percent of earnings not subject to social security tax.

F. As of January 1, 1987, all existing member contribution accounts shall be frozen. Only contributions by employees for work performed prior to January 1, 1987, may be added to the account. Member contributions to this account, and any interest that may accrue to the employee's account under the terms of the system, will be refundable under the same terms and conditions that existed prior to January 1, 1987.

G. No contribution made by the metropolitan government shall accrue to the member contribution account. All contributions made by the metropolitan government, and specifically those assumed as of January 1, 1987, shall remain a part of the fund upon a member's termination.

H. The provisions of subsections D through G of this section shall not apply to employees of the metropolitan board of education prior to July 1, 2001. From and after July 1, 2001 subsections D through G of this section shall apply to employees of the metropolitan board of education who are members of the metropolitan employee benefit system and any funds deducted from employee pay for employee contributions for pensions from and after July 1, 2001 shall be refunded to the affected employees. In applying subsections D through G of this section to employees of the metropolitan board of education, "July 1, 2001" shall be substituted for "January 1, 1987" and "metropolitan board of education" shall be substituted for "metropolitan government" wherever appearing in said subsections. Nothing in this subsection shall be construed to affect any employee pension contributions prior to July 1, 2001. (Ord. 2001-776 § 2, 2001; Prior code § 32-1-29)

3.16.040 Metropolitan government contributions—Medical care and life insurance.

A. The metropolitan government shall contribute monthly to the insurance account an amount which, together with employee and pensioner contributions, shall be sufficient to provide either:

1. Monthly premium payments for insured life insurance and medical care benefits provided by the system; or

2. In the base of self-insured benefits, the administration charges made by the administrator together with the contribution to be made by the metropolitan government determined in accordance with Section 3.16.010; or

3. The amount required to finance the cost of services through a health maintenance organization.

B. Reserved. (Ord. BL2008-111 § 1, 2008; Ord. BL2007-101 § 9, 2008; prior code § 32-1-30)

3.16.050 Metropolitan government contributions—Pensions.

A. The metropolitan government shall contribute to the fund not later than June 30th of each fiscal year an amount equal to a percentage of the annual payroll of members who are eligible employees and who are covered for pension benefits, in accordance with Sections 3.28.010 through 3.28.080, Sections 3.29.010 through 3.29.080, and Chapters 3.32, 3.33, 3.36 and 3.37, the percentage to be known as the "employer contribution rate." The employer contribution rate applicable for any fiscal year shall be determined by resolution of the board at a public meeting held at least four months prior to the beginning date of such fiscal year and filed with the metropolitan clerk and shall be at least the smaller of (1) three-tenths of one percent plus the employer contribution rate applicable to the prior fiscal year, or (2) an employer contribution rate, which shall be the ratio of the actuarially determined contribution level to the amount of the valuation payroll, on the basis of an actuarial valuation of the system made as of the last day of the fiscal year preceding the adoption of the contribution rate. The actuarially determined contribution level shall be the sum of normal cost and a percentage of unfunded past service liabilities, such percentage to be determined by the board at a level at least equal to the actuarial valuation interest rate. The actuarial valuation shall be made by a qualified or accredited actuary according to accepted and sound actuarial principles and methods and based on actuarial assumptions which have been recommended by said actuary and approved by the board.

B. The total amount of employer contribution shall be divided on a sound actuarial basis between the six Trust Funds, A through F, to provide the benefits to be paid from each of such trust funds under the plans defined in Section 3.08.010 in accordance with the last actuarial valuation as determined by such actuary and approved by the board. The "Metropolitan Employee Benefit Trust Fund of the Metropolitan Government of Nashville and Davidson County" as it exists on the date of the amendment codified in this section, shall be equitably allocated after such date to create Trust Funds A through F respectively on the basis of an actuarial valuation of the system as determined by such actuary and approved by the board. Provided, the metropolitan government shall not contribute to the fund for those employees who are eligible to participate in the state requirement for county paid judges pension plan and who elect to do so. (Ord. 95-1452 §§ 39, 40, 41, 1995; prior code § 32-1-31)

Chapter 3.20

LIFE INSURANCE BENEFITS

Sections:

3.20.010	**Eligibility for benefits.**
3.20.020	**Determination of benefits.**
3.20.030	**Life contract requirements—Benefits and features.**
3.20.040	**In-line-of-duty death benefit.**

3.20.010 Eligibility for benefits.

Each member shall be covered for life insurance benefits during all times that he is an eligible employee and shall be entitled to benefits provided by a "life contract," which shall be a contract providing group life insurance, issued to the board by the insurer selected to underwrite life insurance benefits pursuant to this chapter. For the purposes of Chapters 3.08 through 3.44, members shall include those persons who become eligible for the state county paid judges pension plan and elect to participate in such system. (Prior code § 32-1-32)

3.20.020 Determination of benefits.

Life insurance benefits on the life of any covered employee shall be in accordance with the life contract, and not in accordance with the provisions of this chapter. (Prior code § 32-1-33)

3.20.030 Life contract requirements—Benefits and features.

The life contract shall include benefits and features described in this section. The board shall determine the content and wording of the contract consistent with the concept that sound actuarial principles and practical administrative methods be followed. Any word or expression set out below in this section that is not defined in Chapters 3.08 through 3.44 shall have the meaning established by the board in accordance with usual terminology in the insurance industry and in accordance with such life contract. The life contract shall include provisions for the following:

A. Life insurance on a covered member's life at any time shall be based on his annualized rate of earnings (annualized earnings) and age last birthday (insuring age) on the preceding July 1st or on his date of becoming a member if he was not a member on a preceding July 1st. Changes in amounts of life insurance benefits for any covered member by reason of his annualized earnings or insuring age shall be effective only on a July 1st once per fiscal year.

B. The amount of life insurance benefit available to employees shall be in accordance with the contract as authorized by the board.

C. Waiver of premium benefits for disability occurring prior to age sixty shall be included. The word "disability" shall have the definition as is customary with the insurer and not as otherwise defined in the system.

D. Conversion privileges shall be included.

E. No medical examination shall be required for purposes of any life insurance benefits.

F. Other usual types of provisions shall be included as the board and the insurer may mutually agree. (Ord. 96-540 § 6, 1996; Ord. 92-159 §§ 15, 16, 1992; prior code § 32-1-34)

3.20.040 In-line-of-duty death benefit.

A. As of January 1, 1993, any metropolitan employee whether regularly employed or not, who loses their life as a direct result of an act occurring or a thing done or a risk taken which, as determined in the discretion of the board, was required of the employee in the performance of the employee's duties as a metropolitan employee shall be entitled to an indemnity of one hundred thousand dollars paid to the estate of the metropolitan employee. Any amount payable under this section shall be in addition to benefits otherwise provided by the metropolitan system of employee benefits; however, any amount payable under this section shall constitute an indemnity in lieu of all other claim of liability as may be claimed in the Charter or claimed otherwise against the metropolitan government. This section shall not, however, establish eligibility or rights to any other benefit provided by the metropolitan system.

B. The board, together with actuarial consultants and legal counsel, shall prepare specifications for submission to insurers interested in underwriting benefits provided by this section. Except as further provided in this section, the director of finance shall have the authority to determine the extent to which any or all of the indemnity shall be self-insured by metropolitan government and shall so advise the board. Notice of the request for bids from insurers shall be published in two newspapers of wide circulation in the county at least sixty days prior to the date specified by the board for the receipt of such bids. On the basis of bids received by the board, the board shall select an insurer on the basis of low retention consistent with low rates. No insurer shall be eligible for consideration unless its volume of annual business with respect to accidental death or occupational accidental death coverage is at least ten times the premium volume of premiums required to underwrite benefits contained in this section. Upon the selection of an insurer, the board shall be authorized and empowered

to execute a contract with such insurer to effectuate coverage. Any indemnity payable under this section on account of a death occurring prior to the date such a contract has been executed shall be self-insured and paid by metropolitan government. For the purposes of Chapters 3.08 through 3.44, members shall include those persons who become eligible for the state county paid judges pension plan and elect to participate in such system. (Ord. 95-1452 § 47, 1995; Ord. 92-462 § 2, 1993; prior code § 32-1-48.1)

Chapter 3.24

MEDICAL CARE BENEFITS

Sections:

3.24.010	**Eligibility for benefits.**
3.24.020	**Benefit requirements.**

3.24.010 Eligibility for benefits.

A. Each member shall be covered for medical care benefits during all times that the member is an eligible employee or pensioner and shall contribute for such benefits in accordance with Section 3.16.020. Effective January 1, 2023, a Group Medicare Advantage plan shall be the only option for medical care benefits offered by the metropolitan government to pensioners and their dependents in circumstances where a pensioner and their dependents are Medicare eligible. For the purposes of Chapters 3.08 through 3.44, members shall include those persons who become eligible for the state county paid judges pension plan and elect to participate in the system.

B. Elected officials who were participants in the comprehensive health care plan during the time they held office may elect to continue the health care plan, provided they pay the full amount of the premium without any subsidy from metropolitan government; provided, however, those elected officials holding office for eight years or more and those persons receiving a pension from the state county paid judges pension plan may elect to continue the health care plan, provided they pay the contribution rates equivalent to those rates paid by metropolitan government employees. Dependents of metropolitan government officials may be continued under the plan provided they were covered during the elected official's tenure in office. Dependents may also continue to participate in the comprehensive health care plan upon the elected official's becoming deceased if they were covered by the plan during the life of the elected official.

C. Council member participation in the comprehensive health care plan.

1. Members of the metropolitan council, during their term of office, shall be authorized to participate in the health insurance program under the same terms and conditions as are available for regular metropolitan government employees. The benefits and contribution rates shall be equivalent to those benefits and rates paid by metropolitan government employees. Each member of council shall have the option of participating in the program by notifying the employee benefit board of their desire to participate in the program at any time during their term of office.

2. Members of council holding office for less than eight years prior to October 1, 2027 who were participants in the comprehensive health care plan during the time they held office may elect to continue the health care plan, provided they pay the full amount of the premium without any subsidy from the metropolitan government.

3. Members of council satisfying one of the following criteria shall be eligible to continue participation in the comprehensive health care plan at the contribution rate equivalent to those rates paid by metropolitan government employees:

a. Those members of council holding office for eight years or more on or prior to October 1, 2027;

b. Those members of council serving prior to September 1, 2007, that served part of one term and a full consecutive term and were prohibited from serving a third consecutive term pursuant to Section 1.07 of the Metropolitan Charter.

4. Those members of council serving at least eight years who are not covered by subsection 3 above shall be eligible to continue participation in the comprehensive health care plan as follows:

a. The metropolitan government shall contribute seventy-five percent of the contribution rate established for medical care benefits for a former member of council for the first two years of continued participation in the comprehensive health care plan after the member leaves office and fifty percent of the contribution rate for the next two years of continued participation in the comprehensive health care plan after the member leaves office;

b. After four years of continued participation after the member leaves office, the metropolitan government shall contribute twenty-five percent of the contribution rate established for medical care benefits for continued participation of the former member of council in the comprehensive health care plan.

5. Except as provided above, no member of council serving after October 1, 2027, shall be eligible for the subsidized health care plan after leaving office.

D. Notwithstanding any other provisions of the system to the contrary, an eligible employee or disability pensioner may decline coverage for medical and/or dental care benefits upon demonstrating to the board that such employee or disability pensioner has other medical and/or dental care coverage. The policies for declining such benefits and demonstrating alternative coverage shall be as approved by the board. The board shall also adopt policies governing the circumstances under which an employee or disability pensioner who has declined medical or dental care benefits coverage may elect to begin such coverage.

E. Notwithstanding any other provisions of the system to the contrary, an eligible retired member may decline coverage for medical and/or dental care benefits. Only retired members who demonstrate alternative non-Medicare coverage at the time of declination of medical and/or dental care benefits may be allowed to elect such coverage in the future. The board shall adopt policies governing the circumstances under which a retired member who declined medical or dental care benefits may be given a one-time opportunity to enroll in such coverage. Only retired members who maintained alternative non-Medicare coverage throughout the period of declination of coverage may be allowed to reenroll in medical and/or dental care benefits. (Ord. BL2021-781 § 1, 2021; Amdts. 1—3 to Ord. BL2020-387 § 1, 2021; Ord. BL2020-387 § 1, 2021; Ord. BL2012-237 §§ 8, 9, 2012; Ord. BL2008-111 § 2, 2008; Ord. BL2007-101 §§ 10, 11, 2008; Ord. 2002-1235 § 1, 2002; Ord. 92-159 § 17, 1992; Ord. 90-1115 § 1, 1990; prior code § 32-1-35)

3.24.020 Benefit requirements.

A. The medical care benefits provided shall be generally consistent with and as liberal as those contained in the group insurance contract in force on January 1, 1973.

B. The medical care benefits or services to be provided by the system shall be announced to the eligible employees and pensioners through the medium of a booklet describing the benefits or services provided.

C. Any covered member may voluntarily elect to provide coverage for his dependents, meaning an eligible employee's or pensioner's spouse and each dependent child.

D. Coverages for members shall be both occupational and nonoccupational, but coverages for dependents shall be nonoccupational only. Any employee who is injured by accident arising out of and in the course of employment shall be entitled to emergency medical treatment at the nearest available medical facility, if necessary. Non-emergency treatment shall be furnished to the employee at an injury-on-duty medical clinic established by the metropolitan government or from a panel of preapproved medical providers established by the board, known as the "in-line-of-duty medical treatment network." After June 30, 2014, or a later date determined by resolution of the metropolitan council, in non-emergency situations, only specialized medical treatment that is not available at the injury-on-duty medical clinic shall be furnished to an injured employee through the in-line-of-duty medical treatment network. More detailed protocol and rules regarding how and when the injury-on-duty clinic shall be utilized may be promulgated by the director of human resources in consultation with the civil service medical examiner, or the board as appropriate. The purchasing agent, after consultation with the director of human resources, shall have the authority to award a professional services contract to a healthcare provider to furnish occupational medical services to employees at the injury-on-duty clinic. The contract to provide medical services at the injury-on-duty clinic shall require approval by the metropolitan council if it is not competitively procured in accordance with Title 4 of the Metropolitan Code of Laws. In order for the metropolitan government to bear the expense for the treatment of an occupational injury, such treatment shall be obtained by the employee in conformity with the provisions of this section.

Editor's note—Ord. BL2013-526, adopted Nov. 6, 2013, which pertains to the in-line-of-duty medical clinic does not apply to any person receiving a disability or service pension as of Nov. 6, 2013 while he/she remains on pension.

E. Medical care benefits provided by the system shall not duplicate any benefit provided any member under Section 13.12 of the Charter nor any benefit provided by any group medical care insurance program.

F. All general sessions judges shall be eligible to continue membership in the medical care system upon retirement to the same extent and under the same terms and conditions as are provided for retired members, as defined in Section 3.08.010 and this section. Premiums due from the retired judges shall be payable on a semiannual basis to the employee benefit board. Continued membership is optional with each judge.

G. When medical treatment is rendered to a member for an in-line-of-duty injury, at the expense of the metropolitan government, and was caused under circumstances creating a legal liability against some person other than the metropolitan government to pay damages, the injured employee shall have the right to receive benefits as provided herein, and such injured employee may pursue his remedy by proper action in a court of competent jurisdiction against such person. In the event of recovery against such third person by the injured employee by judgment, settlement or otherwise, and the government's maximum liability for benefits as provided herein has been fully or partially paid and discharged, the government shall have a subrogation right, therefor, against such recovery for medical treatment. Such settlements shall be reported to and approved by the board. (Ord. BL2025-1064 § 1, 2025; Ord. BL2007-101 §§ 12, 13, 2008; Ord. BL2006-1288 § 1, 2006; Ord. BL2005-843 § 1, 2005; Ord. BL2003-58 § 1, 2003; Ord. 95-1452 §§ 42, 43, 1995; Ord. 92-159 § 18, 1992; prior code § 32-1-36)

Chapter 3.28

DISABILITY PENSIONS—DIVISION A

Sections:

3.28.010	**Disability defined.**
3.28.020	**Eligibility for pension—Policy generally.**
3.28.030	**Eligibility for pension—Disabled not in line of duty.**
3.28.040	**Eligibility for pension—Disabled in line of duty.**
3.28.050	**Determination and payment of pension.**
3.28.060	**Board authority—Disability report required—Resuming work—Termination of pension.**
3.28.070	**Survivor benefits—Conditions for payment.**
3.28.080	**Survivor benefits—When member died in line of duty.**
3.28.100	**Questionnaire requirements for recipients.**

The provisions of this chapter shall apply only to those members who are covered under Division A of the system. (Ord. 95-1452 § 45, 1995)

3.28.010 Disability defined.

A. A member whose termination occurs because of disability while he or she is a fireman or policeman or in the line of duty, as provided in Section 3.28.040, shall be deemed to be "disabled" (1) if the member becomes disabled as a result of medically determinable bodily injury or disease or mental disorder so that during the continuation of the member's disability following such disability the member is unable to perform the duties of any occupation in the metropolitan government which is offered to the member at a rate of earnings equal to or higher than the member was receiving at the time of the disability for which he or she is reasonably capable of performing by reason of training, education or experience, and (2) if, upon review of the continuing disability, it is determined that the member is incapable of engaging in any occupation in the metropolitan government, which is offered to the member at a rate of earnings equal to or higher than he or she was receiving at the time of the disability, so that the sum of the member's earnings while disabled and his or her gross disability pension does not exceed one hundred percent of the member's frozen earnings, subject, however, to all other requirements of this chapter.

B. A member whose termination occurs because of disability, other than in the line of duty, and who is then not a fireman or policeman, shall be deemed to be "disabled" if he or she becomes disabled as a result of medically determinable bodily injury or disease or mental disorder and upon review of the continuing disability, it is determined the member is incapable of engaging in any occupation in the metropolitan government, which is offered to the member at a rate of earnings equal to or higher than he or she was receiving at the time of the disability, so that the sum of member's earnings while disabled and his or her gross disability pension does not exceed one hundred percent of the member's frozen earnings; subject, however, to all other requirements of this chapter.

C. Loss by severance of both hands at or above the wrists, or both feet at or above the ankles, or one hand above the wrist and one foot at or above the ankle, or the complete irrecoverable loss of the sight of both eyes shall conclusively determine disability, and in such event, the disability pension deduction of such a disabled member shall be zero, notwithstanding anything in this chapter to the contrary.

D. Notwithstanding any provision in this section to the contrary, disability shall not include any physical or mental condition which results directly from:

1. Injury intentionally self-inflicted;

2. Injury or disease resulting from military service;

3. Injury or disease suffered or contracted prior to the date last hired as a metropolitan employee, if the date of hire was after April 1, 1963. (Ord. BL2006-1054 §§ 1, 2, 2006; prior code § 32-1-41)

3.28.020 Eligibility for pension—Policy generally.

Only a member who, at the time of occurrence of disability, is an eligible employee and is not specifically excluded by the Metropolitan Charter from having a pension from the system, shall be covered for a disability pension in accordance with this chapter. (Prior code § 32-1-42)

3.28.030 Eligibility for pension—Disabled not in line of duty.

A member who is covered for a disability pension, who has completed ten years of credited service and who becomes disabled, as defined in Section 3.28.010, shall be eligible to receive a disability pension, subject to all applicable requirements of this chapter. (Prior code § 32-1-43)

3.28.040 Eligibility for pension—Disabled in line of duty.

A member who is covered for a disability pension, who becomes disabled, as defined in Section 3.28.010, in the line of duty, shall be eligible to receive a disability pension, provided his disability is a result, directly or indirectly, of an act occurring or thing done or risk taken which, as determined in the discretion of the board, was required of him in the performance of his duty as a metropolitan employee. Any metropolitan employee hired after April 1, 1963, who is an eligible employee shall be deemed to be a member from his date of employment in the metropolitan government for purposes of this section. (Prior code § 32-1-44)

3.28.050 Determination and payment of pension.

A. The disability pension payable to a disabled member in any month shall be the amount of his "net disability pension." His net disability pension due in any month shall be the amount by which a disabled member's "gross disability pension" exceeds the sum of his social security primary benefit and his "disability pension deduction" applicable to that month.

B. The gross disability pension of a disabled member shall be computed as sixty percent of his monthly average earnings over the last twelve months preceding retirement, plus an additional ten percent of his monthly average earnings over the last twelve months preceding retirement, provided he has at least one dependent child.

C. A disability pension shall be payable until age sixty-five, except as otherwise provided in Section 3.32.030C, and during the lifetime and continuation of disability of a member commencing after his benefit application has been filed and following the board's determination that he is a permanently disabled member; except, that no payment shall be due or payable until all his sick leave, salary continuation or vacation benefits of whatever kind may be then provided to him by the metropolitan government are exhausted; provided further, however, that if a disabled member is eligible to receive a monthly disability pension until he has attained age sixty-five, the disability pension shall then cease and thereafter he shall be eligible to receive a normal retirement pension in accordance with Chapters 3.36 and 3.40; except, that his service shall include his entire period of disability prior to attaining age sixty-five as though his termination had never occurred, and the normal retirement pension shall be computed as though his earnings from the date his disability pension commenced had remained the same until his normal retirement date as his earnings prior to the date his disability pension commenced, notwithstanding any provision in the system to the contrary. The amendments made to this subsection by Ordinance 97-1018 shall have a retroactive application date of January 1, 1997.

D. When a disability pension is paid to a member for an in-line-of-duty injury, at the expense of the metropolitan government, and was caused under circumstances creating a legal liability against some person other than the metropolitan government to pay damages, the injured employee shall have the right to receive benefits as provided herein, and such injured employee and/or the metropolitan government may pursue his/her remedy by proper action in a court of competent jurisdiction against such person. In the event of recovery against such third person by judgment, settlement or otherwise, the metropolitan government shall have a subrogation right against such recovery for the cost of the disability pension. The metropolitan government shall only collect its subrogation interest when the employee has been made whole by settlement, judgment or otherwise. Such settlements shall be reported to and approved by the board. (Ord. 2002-1233 § 1, 2002; Ord. 97-1018 §§ 6, 10 (part), 1997; Ord. 92-159 § 19, 1992; prior code § 32-1-45)

3.28.060 Board authority—Disability report required—Resuming work—Termination of pension.

A. The board shall have the exclusive authority to determine the disability and continuation of disability of a disabled member and shall, in accordance with this section, determine the "disability pension deduction" of a disabled member. An applicant for a disability pension shall furnish to the board a "disability report," as provided in this section, and such other medical or other information as may reasonably be required by the board for the purpose of establishing disability. The board may secure additional medical or other evidence as it deems necessary and appropriate. On the basis of the disability report, medical and other information as the board has assembled, the board shall thereupon determine whether or not the applicant is a disabled member, and if so shall determine the amount of his gross disability pension, disability pension deduction and net disability pension.

B. At least once each calendar year thereafter, the board shall require any disabled member who is receiving a disability pension and who has not reached his sixty-fifth birthday to submit a disability report and written proof satisfactory to the board that he is still disabled. At least once per year and no more frequently than monthly, the board may require a disabled member to file a disability report. The disability report shall show

(1) whether or not social security benefits have been applied for, and if not, the report shall be accompanied by a copy of the letter from the social security administration stating that he is not eligible for social security benefits, (2) the amount, if any, of primary social security benefits that he is receiving, and (3) the amount of his earnings while disabled. The board, at each regular meeting, shall redetermine the disability pension deduction and net disability pension of all disabled members for whom all reports have been requested and received, or from whom reports have been voluntarily submitted, on the basis of the disability reports and any other information the board may reasonably require of the disabled member. The disability pension deduction of a disabled member shall be redetermined by the board in a practical manner as the monthly average, for the period of time covered by his last report, of his member's earnings while disabled. The disability pension deduction shall be the amount, if any, by which his frozen earnings is exceeded by the sum of his gross disability pension and his earnings while disabled. Any redetermined amount of net disability pension shall not be payable until the calendar month next following the month in which the board's redetermination is made.

C. 1. The board is authorized at any time to cause an investigation to be made of any pensioner being paid a disability pension because of medically determinable bodily injury or disease or mental disorder or disability due to injury suffered in the course of his employment. In gathering information concerning and in determining the existence and/or continuation of disability, the board may utilize the services of an insurance company, physicians, or any other entity deemed by the board to be suitable for such purpose. If, in the judgment of the board, such pensioner is able to resume work in the classified service, the pension shall cease upon the pensioner's being assigned to work in the classified service at the same, or substantially the same rate of pay being paid at the time the disability occurred; however, if the pensioner be a policeman or fireman, the pension shall cease upon the board's finding that the pensioner is able to resume active work in the same department in which such pensioner worked at the time the disability occurred and only upon such pensioner's being assigned to work in such department at the same, or substantially the same, rate of pay being paid at the time such pensioner was disabled. In all cases, the duties of such assigned position shall not be substantially less in authority or responsibility and shall be such that the pensioner can perform based on his training, education and experience.

2. Any pensioner able to resume work with the metropolitan government at a rate of pay less than he was receiving at the time of disability shall have his rate of pay supplemented by the board by the amount that the pensioner's current pay falls below the pensioner's prior rate of pay. Pay supplement shall not take into consideration any overtime pay, shift differential or other pay supplements, but shall be based solely upon the employee's base salary. The amount of salary supplement shall continue until the pensioner's current rate of pay exceeds the pensioner's prior rate of pay except the salary supplement shall not be diminished by any across-the-board pay increases given to Metro employees.

D. A pensioner who accepts the work assigned in the classified service shall receive credit for service under the system, including the period of time during which he was receiving disability pension benefits; a pensioner who does not accept the work assigned in the classified service shall not receive credit for service during disability, even if substantially reemployed by Metro, although such member subsequently reemployed shall receive credit for service under the system for all months in which he was a metro employee.

E. A member whose disability pension has been terminated because he did not accept the work assigned in the classified service shall be entitled to apply for resumption of benefits, which right shall terminate upon the expiration of ten years after the member's last disability payment, or at age sixty-five, whichever occurs first; provided, that nothing in this paragraph shall be construed to limit the authority of the board to consider the total actual disability of a member who returns to employment with Metro after a period of disability and subsequently becomes disabled again while employed by Metro, notwithstanding such member's failure to reapply for benefits during the ten-year period.

F. A member whose disability pension has been terminated as provided for herein shall have the right to a hearing on any finding of fact and may submit any evidence to the board as he deems necessary, and the board shall reconsider its determinations.

G. "Disability," when applied to firemen or policemen, shall mean the inability and/or the incapacity to perform the duties of a fireman or policeman.

H. An employee returning to work in the classified service shall receive priority consideration in being assigned to the position he or she previously held based upon training, education and experience. Should this position not be available upon the employee's return to work, the employee shall be placed in that previous position as soon as that position becomes vacant and available.

I. The board is authorized to supplement the pay of an employee that meets the definition of disability set forth in Section 3.28.010, 3.28.030, or 3.28.040, when the employee is able to continue working for the metro-

politan government in a position where the salary is less than the employee was receiving at the time of disability. Pay supplement shall not take into consideration any overtime pay, shift differential or other pay supplements, but shall be based solely upon the employee's base salary prior to disability. The amount of salary supplement shall continue until the employee's current rate of pay exceeds the pre-disability rate of pay, except that the salary supplement shall not be diminished by any across-the-board pay increases given to metro employees. (Ord. BL2012-237 § 10, 2012; Ord. 95-1452 §§ 44, 46, 1995; Ord. 93-795 § 1, 1993; Ord. 92-159 § 20, 1992; prior code § 32-1-46)

3.28.070 Survivor benefits—Conditions for payment.

A. If a disabled member dies prior to attainment of age sixty-five and while entitled to receive a disability pension, whether or not any pension payments have actually been made, a survivor benefit shall be payable thereafter under the following conditions:

1. To the deceased disabled member's widow until her death and thereafter to the natural guardian or guardians of such surviving dependent children, if any, of such deceased disabled member; otherwise, to the legal guardian or guardians of the surviving dependent children of the deceased disabled. Where a deceased member dies with more than one set of surviving dependent children, benefits which are payable to natural or legal guardians under this subdivision 1 for the benefit of such surviving dependent children, shall be distributed per capita among the children so that each such dependent child shall share equally in the benefits so long as he remains a dependent child;

2. To the legal guardian or guardians of the surviving dependent children of a deceased disabled member for the benefit of such surviving dependent children when the deceased disabled member dies with no spouse surviving him.

B. The benefits provided by this section to be paid for the benefit of the surviving dependent children of a deceased disabled member shall terminate when there ceases to be a surviving dependent child of a deceased disabled member.

C. The amount of the survivor benefit shall equal seventy-five percent of the amount by which the member's disability pension exceeds seventy-five percent of the widow's social security benefit which she may receive; provided, that the amount of survivor benefit payable after the widow's age sixty-five shall not exceed the benefit that would have commenced at the member's age sixty-five, based on his average earnings at time of termination, in accordance with Option A, had said member's termination not occurred until he reached age sixty-five. (Ord. 91-1682 § 1, 1991; prior code § 32-1-47)

3.28.080 Survivor benefits—When member died in line of duty.

If a member who is an eligible employee dies and his death is the result, directly or indirectly, of an act occurring or thing done or risk taken, which, as determined in the discretion of the board, was required of him in the performance of his duty as a metropolitan employee, a survivor benefit shall be payable in accordance with Section 3.28.070 as though he had died after commencing to receive a disability pension benefit. (Prior code § 32-1-48)

3.28.100 Questionnaire requirements for recipients.

A. All persons on disability pension, under this Division, shall be required to fill out the questionnaire set out in this section. The questionnaire is to provide the employee benefit board information on persons receiving disability pensions. The questionnaire shall be submitted at least annually, in July of each year, commencing July, 1978, and such questionnaire shall be signed, and the following words shall be printed on the application above the signature: "Under penalties of perjury, I declare that I have examined this application and to the best of my knowledge and belief it is true, correct and complete."

B. If a person on disability pension fails or refuses to fill out the questionnaire, or fails or refuses to provide the medical authorization herein provided for, the person on disability pension shall be terminated until such information is provided.

C. The following information shall be included:

1. The nature of the disability;

2. Person's attending physician;

3. The date of the person's last physical examination;

4. Changes in the person's physical condition;

5. Whether or not the person is presently employed;

6. If the person is employed, whether their earned income (i.e., wage or salary — not rent, interest, dividends or capital gains) exceeds their disability income;

7. Whether or not the person is willing to return to employment with the metropolitan government if a position can be secured for his employment;

8. The person on disability pension shall be required to submit proper medical authorization for the purpose of enabling the benefit board to secure pertinent medical records and reports.

D. In addition to the above questions, the board shall be authorized to include other pertinent questions concerning the person's physical condition; provided, however, that this questionnaire shall not apply to any individual who is on a disability pension who has attained the age of sixty-five. (Ord. 95-1452 § 48, 1995; prior code § 32-1-48.2)

Chapter 3.29

DISABILITY PENSIONS—DIVISION B

Sections:

3.29.010	**Disability defined.**
3.29.020	**Eligibility for pension—Policy generally.**
3.29.030	**Eligibility for pension—Disabled not in line of duty.**
3.29.040	**Eligibility for pension—Disabled in line of duty.**
3.29.050	**Determination and payment of pension.**
3.29.060	**Board authority—Disability report required—Resuming work—Termination of pension.**
3.29.070	**Survivor benefits—Conditions for payment.**
3.29.080	**Survivor benefits—When member died in line of duty.**
3.29.090	**Questionnaire requirements for recipients.**

The provisions of this chapter shall apply only to those members who are under Division B of the system. (Ord. 95-1452 § 49 (part), 1995)

3.29.010 Disability defined.

A. A member whose termination occurs because of disability while he or she is a fire fighter or policeman or in the line of duty, as provided in Section 3.29.040, shall be deemed to be "disabled" (1) if the member becomes disabled as a result of medically determinable bodily injury or disease or mental disorder so that during the continuation of the member's disability following such disability the member is unable to perform the duties of any occupation in the metropolitan government which is offered to the member at a rate of earnings equal to or higher than the member was receiving at the time of the disability for which he or she is reasonably capable of performing by reason of training, education or experience, and (2) if, upon review of the continuing disability, it is determined that the member is incapable of engaging in any occupation in the Metropolitan Government, which is offered to the member at a rate of earnings equal to or higher than he or she was receiving at the time of the disability so that the sum of the member's earnings while disabled and his or her gross disability pension does not exceed one hundred percent of the member's frozen earnings, subject, however, to all other requirements of this chapter.

"Disability" when applied to a fire fighter or a policeman, shall mean the inability and/or the incapacity to perform the duties of a fire fighter or policeman.

B. A member whose termination occurs because of disability other than in the line of duty and who is then not a fire fighter or policeman shall be deemed to be "disabled" if he or she becomes disabled as a result of medically determinable bodily injury or disease or mental disorder and upon a review of the continuing disability it is determined the member is incapable of engaging in any occupation in the metropolitan government, which is offered to the member at a rate of earnings equal to or higher than he or she was receiving at the time of the disability so that the sum of the member's earnings while disabled and his or her gross disability pension does not exceed one hundred percent of the member's frozen earnings, subject, however, to all other requirements of this chapter.

C. Loss by severance of both hands at or above the wrists, or both feet at or above the ankles, or one hand above the wrist and one foot at or above the ankle, or the complete irrevocable loss of the sight of both eyes shall conclusively determine disability, and in such event, the disability pension deduction of such a disabled member shall be zero, notwithstanding anything in this chapter to the contrary.

D. Notwithstanding any provision in this section to the contrary, disability shall not include any physical or mental condition which results directly from:

1. Injury intentionally self-inflicted;
2. Injury or disease resulting from military service;
3. Injury or disease suffered or contracted prior to the date last hired as a metropolitan employee, if the date of hire was after April 1, 1963. (Ord. BL2006-1054 §§ 3, 4, 2006; Ord. 95-1452 § 49(a), 1995)

3.29.020 Eligibility for pension—Policy generally.

Only a member who, at the time of occurrence of disability, is an eligible employee and is not specifically excluded by the Metropolitan Charter from having a pension from the system, shall be covered for a disability pension in accordance with this chapter. (Ord. 95-1452 § 49(b), 1995)

3.29.030 Eligibility for pension—Disabled not in line of duty.

A member who is covered for a disability pension, who has completed ten years of credited service and who becomes disabled, as defined in Section 3.29.010, shall be eligible to receive a disability pension, subject to all applicable requirements of this chapter. (Ord. 95-1452 § 49(c), 1995)

3.29.040 Eligibility for pension—Disabled in line of duty.

A member who is covered for a disability pension, who becomes disabled, as defined in Section 3.29.010, in the line of duty, shall be eligible to receive a disability pension, provided his disability is a direct result of an act occurring or thing done or risk taken which, as determined in the discretion of the board, was required of him in the performance of his duty as a metropolitan employee. Any metropolitan employee hired after April 1, 1963, who is an eligible employee shall be deemed to be a member from his date of employment in the metropolitan government for purposes of this section. (Ord. 95-1452 § 49(d), 1995)

3.29.050 Determination and payment of pension.

A. The disability pension payable to a disabled member in any month shall be fifty percent of his frozen earnings plus, provided he has at least one dependent child, an additional ten percent of frozen earnings, less any disability pension deduction. However, if he becomes eligible for Social Security disability benefits, the fifty percent factor in the previous sentence will be reduced to thirty percent, but no further reduction will be taken to offset Social Security. In no event will the total disability benefit, paid by Metro and Social Security, be less than the benefit Metro would have paid had the disability pensioner not qualified for Social Security disability benefits.

B. A disability pension shall be payable until the member's unreduced retirement age except as otherwise provided in Section 3.36.030C, and during the lifetime and continuation of disability of the member commencing after his benefit application has been filed and following the board's determination that he is a permanently disabled member, except that no payment shall be due or payable until all his sick leave, salary continuation, or vacation benefits of any kind which may be then provided to him by the metropolitan government are exhausted; provided further, however, that if a disabled member is eligible to receive a monthly disability pension until his unreduced retirement age, the disability pension shall then cease, and thereafter he shall be eligible to receive a normal retirement pension in accordance with Chapters 3.33, 3.37 and 3.40; except that his service shall include his entire period of disability prior to the attainment of his unreduced retirement age as though his termination had never occurred, and the service retirement pension shall be computed as though his earnings from the date his disability pension commenced had remained the same until his service retirement date as his earnings prior to the date his disability pension commenced, notwithstanding any provisions of the system to the contrary.

C. When a disability pension is paid to a member for an in-line-of-duty injury, at the expense of the metropolitan government, and was caused under circumstances creating a legal liability against some person other than the metropolitan government to pay damages, the injured employee shall have the right to receive benefits as provided herein, and such injured employee and/or the metropolitan government may pursue his/her remedy by proper action in a court of competent jurisdiction against such person. In the event of recovery against such third person by judgment, settlement or otherwise, the metropolitan government shall have a subrogation right against such recovery for the cost of the disability pension. The metropolitan government shall only collect its subrogation interest when the employee has been made whole by settlement, judgment or otherwise. Such settlements shall be reported to and approved by the board. (Ord. 2002-1233 § 2, 2002; Ord. 97-1018 § 8, 1997; Ord. 95-1452 § 49(e), 1995)

3.29.060 Board authority—Disability report required—Resuming work—Termination of pension.

A. The board shall have exclusive authority to determine the disability and continuation of disability of a disabled member, and shall, in accordance with this section, determine the disability pension deduction of a disabled member. An applicant for a disability pension shall furnish to the board a disability report, as provided in this section, and such medical or other information as may reasonably be required by the board for the purpose of establishing disability. The board may secure additional medical or other evidence as it deems necessary and appropriate. On the basis of the disability report, medical, and other information as the board has assembled, the board shall thereupon determine whether or not the applicant is a disabled member, and if so shall determine the amount of his gross disability pension, disability pension deduction, and net disability pension.

B. At least once each calendar year thereafter, the board shall require any disabled member who is receiving a disability pension, and who has not reached his unreduced retirement age, to submit a disability report and written proof satisfactory to the board that he is still disabled. At least once per year, and no more frequently then monthly, the board may require a disabled member to file a disability report. The disability report shall show (1) whether or not Social Security benefits have been applied for, and if the application has been rejected, the

report shall be accompanied by a copy of the letter from the Social Security Administration stating that he is not eligible for Social Security benefits, (2) the amount, if any, of primary Social Security benefits that he is receiving, and (3) the amount of his outside earnings while disabled. The board, at each regular meeting, shall redetermine the disability pension deduction and net disability pension of all disabled members for whom all reports have been requested and received, or from whom reports have been voluntarily submitted, on the basis of the disability reports and any other information the board may reasonably require of the disabled member. For purposes of calculating the disability pension deduction of a disabled member, the member's earnings while disabled shall be redetermined by the board in a practical manner as the monthly average, for the period of time covered by his last report, of the member's reported earnings while disabled. The disability pension deduction shall be the amount, if any, by which his frozen earnings is exceeded by the sum of his gross disability pension and his earnings while disabled. Any redetermined amount of net disability pension shall not be payable until the calendar month following the month in which the board's redetermination is made.

C. 1. The board is authorized at any time to cause an investigation to be made of any pensioner being paid a disability pension because of medically determinable bodily injury, or disease, or mental disorder, or disability due to injury suffered in the course of his employment. In gathering information concerning and in determining the existence and/or continuation of disability, the board may utilize the services of an insurance company, physicians, or any other entity deemed by the board to be suitable for such purpose. If, in the judgment of the board, such pensioner is able to resume work in the classified service, the pension shall cease upon the pensioner's being assigned to work in the classified service at the same, or substantially the same, rate of pay being paid at the time the disability occurred; however, if the pensioner be a policeman or fire fighter, the pension shall cease upon the board's finding that the pensioner is able to resume active work in the same department in which such pensioner worked at the time the disability occurred, and only upon such pensioner's being assigned to work in such department at the same, or substantially the same, rate of pay being paid at the time such pensioner was disabled. In all cases, the duties of such assigned position shall not be substantially less in authority or responsibility and shall be such that the pensioner can perform based on his training, education and experience.

2. Any pensioner able to resume work with the metropolitan government at a rate of pay less than he was receiving at the time of disability shall have his rate of pay supplemented by the board by the amount that the pensioner's current pay falls below the pensioner's prior rate of pay. Pay supplement shall not take into consideration any overtime pay, shift differential or other pay supplements, but shall be based solely upon the employee's base salary. The amount of salary supplement shall continue until the pensioner's current rate of pay exceeds the pensioner's prior rate of pay except the salary supplement shall not be diminished by any across-the-board pay increases given to Metro employees.

D. Once the board has determined that the pensioner is medically capable of returning to work, the department that the pensioner last worked in will be notified that the pensioner is medically capable of returning to work. If the department fails to return the pensioner to work, within sixty days of the date of notification to the department, the cost of all continuing disability payments will be allocated to the pensioner's former department on a quarterly basis. The board shall report to the mayor and the council budget and finance committee, on a quarterly basis, allocations made to the board, by any department.

E. The board shall assist departments in identifying, where possible, work assignments for disabled workers to return to, that otherwise complies with this chapter. If a disabled pensioner refuses to return to work after a third written offer of employment, the disability pension shall automatically terminate. A pensioner who accepts the work assigned in the classified service shall receive credit for service under the system, including the period of time during which he was receiving disability pension benefits; a pensioner who does not accept the work assigned in the classified service shall not receive credit for service during disability, even if subsequently reemployed by the metropolitan government, although such member subsequently reemployed shall receive credit for service under the system for all months in which he was an eligible employee.

F. A member whose disability pension has been terminated because he did not accept the work assigned in the classified service shall be entitled to apply for resumption of benefits, which right shall terminate upon the expiration of ten years after the member's last disability payment, or at unreduced retirement age, whichever occurs first; provided, that nothing in this paragraph shall be construed to limit the authority of the board to consider the total actual disability of a member who returns to employment with the metropolitan government after a period of disability and subsequently becomes disabled again while employed by the metropolitan government, notwithstanding such member's failure to reapply for benefits during the ten-year period.

G. A member whose disability pension has been terminated as provided for herein shall have the right to a hearing on any finding of fact, and may submit any evidence to the board as he deems necessary, and the board shall reconsider its determinations.

H. An employee returning to work in the classified service shall receive priority consideration in being assigned to the position he or she previously held based upon training, education and experience. Should this position not be available upon the employee's return to work, the employee shall be placed in that previous position as soon as that position becomes vacant and available.

I. The board is authorized to supplement the pay of an employee that meets the definition of disability set forth in Section 3.29.010, 3.29.030, or 3.29.040, when the employee is able to continue working for the metropolitan government in a position where the salary is less than the employee was receiving at the time of disability. Pay supplement shall not take into consideration any overtime pay, shift differential or other pay supplements, but shall be based solely upon the employee's base salary prior to disability. The amount of salary supplement shall continue until the employee's current rate of pay exceeds the pre-disability rate of pay, except that the salary supplement shall not be diminished by any across-the-board pay increases given to metro employees. (Ord. BL2012-237 § 11, 2012; Ord. 95-1452 § 49(f), 1995)

3.29.070 Survivor benefits—Conditions for payment.

A. If a disabled member dies before reaching unreduced retirement age and while entitled to receive a disability pension, whether or not any pension payments have actually been made, a survivor benefit shall be payable thereafter under the following conditions:

1. To the deceased disabled member's widow until her death and thereafter to the natural guardian or guardians of such surviving dependent children, if any, of such deceased disabled member; otherwise, to the legal guardian or guardians of the surviving dependent children of the deceased disabled. Where a deceased member dies with more than one set of surviving dependent children, benefits which are payable to natural or legal guardians under this subdivision 1 for the benefit of such surviving dependent children, shall be distributed per capita among the children so that each such dependent child shall share equally in the benefits so long as he remains a dependent child;

2. To the legal guardian or guardians of the surviving dependent children of a deceased disabled member for the benefit of such surviving dependent children when the deceased disabled member dies with no spouse surviving him.

B. The benefits provided by this section to be paid for the benefit of the surviving dependent children of a deceased disabled member shall terminate when there ceases to be a surviving dependent child of a deceased disabled member.

C. The amount of the survivor benefit shall equal twenty-five percent of the member's average earnings preceding his disability, but not less than the benefit that would have commenced at the member's date of death had he retired instead of dying, based on his average earnings and service at the time of his termination, in accordance with Option A. (Ord. 95-1452 § 49(g), 1995)

3.29.080 Survivor benefits—When member died in line of duty.

If a member who is an eligible employee dies and his death is the result, directly or indirectly, of an act occurring, or thing done, or risk taken, which, as determined in the discretion of the board, was required of him in the performance of his duty as a metropolitan employee, a survivor benefit shall be payable in accordance with Section 3.29.070 as though he had died after starting to receive a disability pension benefit. (Ord. 95-1452 § 49(h), 1995)

3.29.090 Questionnaire requirements for recipients.

A. All persons on disability pension, under this Division, shall be required to fill out the questionnaire set out in this section. The questionnaire is to provide the employee benefit board information on persons receiving disability pensions. The questionnaire shall be submitted at least annually, in July of each year, commencing July, 1978, and such questionnaire shall be signed, and the following words shall be printed on the application above the signature: "Under penalties of perjury, I declare that I have examined this application and to the best of my knowledge and belief it is true, correct and complete."

B. If a person on disability pension fails or refuses to fill out the questionnaire, or fails or refuses to provide the medical authorization herein provided for, the person's disability pension shall be suspended until such information is provided.

C. The following information shall be included:

1. The nature of the disability;
2. Person's attending physician;

3. The date of the person's last physical examination;

4. Changes in the person's physical condition;

5. Whether or not the person is presently employed;

6. If the person is employed, whether his earned income (i.e., wage or salary — not rent, interest, dividends or capital gains) exceeds his disability income;

7. Whether or not the person is willing to return to employment with the metropolitan government if a position can be secured for his employment;

8. The person on disability pension shall be required to submit proper medical authorization for the purpose of enabling the benefit board to secure pertinent medical records and reports.

D. In addition to the above questions, the board shall be authorized to include other pertinent questions concerning the person's physical condition; provided, however, that this questionnaire shall not apply to any individual who is on a disability pension who has attained his unreduced retirement age. (Ord. 95-1452 § 49(I), 1995)

Chapter 3.30

PLAN QUALIFICATION

Sections:

3.30.010	**Introduction.**
3.30.020	**Benefit limitations based on Code Section 415.**
3.30.030	**Limitation on earnings.**
3.30.040	**Actuarial equivalence.**
3.30.050	**Minimum distributions.**
3.30.060	**Right to direct rollover.**
3.30.070	**Qualified military service.**
3.30.080	**Family Medical Leave Act requirements.**
3.30.090	**Vesting upon plan termination.**
3.30.100	**Plan forfeitures.**
3.30.110	**Definitions.**
3.30.120	**Prohibition against diversion of trust funds.**
3.30.130	**Reserved.**

3.30.010 Introduction.

A. The pensions for members with credited employee service and pensions for members with credited fire and police service (the "plan") is part of larger system of employee benefits plans provided by the Metropolitan Government of Nashville and Davidson County, Tennessee (metropolitan government) for the benefit of its employees. The benefits included in this system include the plan, as well as disability benefits, medical and life insurance programs. The terms of the plan are set forth in the Metropolitan Code of Laws subject to the provisions of the Metropolitan Charter.

B. Intention. It is the intention of the metropolitan government that the plan comply with all requirements of Internal Revenue Code Section 401(a) that apply to plans that are sponsored by state or local governments or political subdivisions. The metropolitan government intends that this plan be a tax-qualified plan.

C. Purpose of this Chapter. The provisions of this chapter have been adopted by the metropolitan government for the sole purpose of complying with Section 401(a) of the Internal Revenue Code. The provisions of this shall not be construed to change the benefits otherwise payable under the plan unless such is required under the Internal Revenue Code Section 401(a). (Ord. 2002-1060 § 1 (part), 2002)

3.30.020 Benefit limitations based on Code Section 415.

A. The limitations of this Section 3.30.020 shall apply to limitation years that begin more than ninety days after the close of the first regular legislative session of the council that begins on or after July 1, 2007, except as otherwise provided herein.

B. The annual benefit otherwise payable to a member at any time shall not exceed the maximum permissible benefit. If the benefit the member would otherwise accrue in a limitation year would produce an annual benefit in excess of the maximum permissible benefit, the rate of accrual of such benefit shall be reduced so that the benefit does not exceed the maximum permissible benefit.

C. If the member is, or has ever been, a member in another qualified defined benefit plan maintained by the employer, the sum of the member's annual benefits from all such plans may not exceed the maximum permissible benefit. Where the member's employer-provided benefits under all such defined benefit plans (determined as of the same age) would exceed the maximum permissible benefit applicable at that age, the employer will reduce the rate of accrual in this plan to the extent necessary so that the total annual benefit payable at any time under such plans will not exceed the maximum permissible benefit.

D. The application of the provisions of this Section 3.30.020 shall not cause the maximum permissible benefit for any member to be less than the member's accrued benefit under all the defined benefit plans of the employer as of the end of the last limitation year beginning before July 1, 2007, under provisions of the plans that were both adopted and in effect before April 5, 2007. The preceding sentence applies only if the provisions of such defined benefit plans that were both adopted and in effect before April 5, 2007, satisfied the applicable requirements of statutory provisions, regulations, and other published guidance relating to Code Section 415 in effect as of the end of the last limitation year beginning before July 1, 2007, as described in Section 1.415(a)-1(g)(4) of the Treasury Regulations.

E. Definitions. For purposes of this Section 3.30.020, the following terms shall be defined as follows:

1. "Annual benefit" means a benefit that is payable annually in the form of a straight life annuity. Except as provided below, where a benefit is payable in a form other than a straight life annuity, the benefit shall be adjusted to an actuarially equivalent straight life annuity that begins at the same time as such other form of benefit and is payable on the first day of each month, before applying the limitations of this Section 3.30.020. For a member who has or will have distributions commencing at more than one annuity starting date, the annual benefit shall be determined as of each such annuity starting date (and shall satisfy the limitations of this Section 3.30.020 as of each such date), actuarially adjusting for past and future distributions of benefits commencing at the other annuity starting dates. For this purpose, the determination of whether a new starting date has occurred shall be made

without regard to section 1.401(a)-20, Q&A 10(d), and with regard to section 1.415(b)1(b)(1)(iii)(B) and (C) of the Treasury Regulations.

No actuarial adjustment to the benefit shall be made for (i) survivor benefits payable to a surviving spouse under a qualified joint and survivor annuity to the extent such benefits would not be payable if the member's benefit were paid in another form; (ii) benefits that are not directly related to retirement benefits (such as a qualified disability benefit, preretirement incidental death benefits, and postretirement medical benefits); or (iii) the inclusion in the form of benefit of an automatic benefit increase feature, provided the form of benefit is not subject to Code Section 417(e)(3) and would otherwise satisfy the limitations of this Section 3.30.020, and the plan provides that the amount payable under the form of benefit in any limitation year shall not exceed the limits of this Section 3.30.020 applicable at the annuity starting date, as increased in subsequent years pursuant to Code Section 415(d). For this purpose, an automatic benefit increase feature is included in a form of benefit if the form of benefit provides for automatic, periodic increases to the benefits paid in that form.

The determination of the annual benefit shall take into account Social Security supplements described in Code Section 411(a)(9) and benefits transferred from another defined benefit plan, other than transfers of distributable benefits pursuant section 1.411(d)-4, Q&A-3(c) of the Treasury Regulations, but shall disregard benefits attributable to employee contributions or rollover contributions.

Effective for distributions in plan years beginning after December 31, 2003, the determination of actuarial equivalence of forms of benefit other than a straight life annuity shall be made in accordance with subsections a or b below.

a. Benefit Forms Not Subject to Code Section 417(e)(3). The straight life annuity that is actuarially equivalent to the member's form of benefit shall be determined under this subsection a if the form of the member's benefit is either (1) a nondecreasing annuity (other than a straight life annuity) payable for a period of not less than the life of the member (or, in the case of a qualified pre-retirement survivor annuity, the life of the surviving spouse), or (2) an annuity that decreases during the life of the member merely because of (a) the death of the survivor annuitant (but only if the reduction is not below fifty percent of the benefit payable before the death of the survivor annuitant), or (b) the cessation or reduction of Social Security supplements or qualified disability payments (as defined in Code Section 401(a)(11)).

(i) Limitation years beginning before July 1, 2007. For limitation years beginning before July 1, 2007, the actuarially equivalent straight life annuity is equal to the annual amount of the straight life annuity commencing at the same annuity starting date that has the same actuarial present value as the member's form of benefit computed using whichever of the following produces the greater annual amount: (A) the interest rate and mortality table (or other tabular factor) specified in Section 3.30.130 of the plan for adjusting benefits in the same form; and (B) a 5-percent interest rate assumption and the applicable mortality table defined in Subsection F below for that annuity starting date.

(ii) Limitation years beginning on or after July 1, 2007. For limitation years beginning on or after July 1, 2007, the actuarially equivalent straight life annuity is equal to the greater of (A) the annual amount of the straight life annuity (if any) payable to the member under the plan commencing at the same annuity starting date as the member's form of benefit; and (B) the annual amount of the straight life annuity commencing at the same annuity starting date that has the same actuarial present value as the member's form of benefit, computed using a 5-percent interest rate assumption and the applicable mortality table defined in Subsection F below for that annuity starting date.

b. Benefit Forms Subject to Code Section 417(e)(3). The straight life annuity that is actuarially equivalent to the member's form of benefit shall be determined under this subsection b if the form of the member's benefit is other than a benefit form described in subsection a above. In this case, the actuarially equivalent straight life annuity shall be determined as follows:

(i) Annuity Starting Date in Plan Years Beginning After 2005. If the annuity starting date of the member's form of benefit is in a plan year beginning after 2005, the actuarially equivalent straight life annuity is equal to the greatest of (A) the annual amount of the straight life annuity commencing at the same annuity starting date that has the same actuarial present value as the member's form of benefit, computed using the interest rate and the mortality table (or other tabular factor) specified in Subsection F below for adjusting benefits in the same form; (B) the annual amount of the straight life annuity commencing at the same annuity starting date that has the same actuarial present value as the member's form of benefit, computed using a 5.5-percent interest rate assumption and the applicable mortality table defined in Subsection F below; and (C) the annual amount of the straight life annuity commencing at the same annuity starting date that has the same actuarial present value as the member's form of benefit, computed using the applicable interest rate and the applicable mortality table defined in Subsection F below, divided by 1.05. Notwithstanding the foregoing, distributions made prior to the effective date of this Section 3.30.020 (as set forth in

Subsection A above) for which the 5.5-percent interest rate assumption may have been applicable but was not applied, do not have to be recalculated.

(ii) Annuity Starting Date in Plan Years Beginning in 2004 or 2005. If the annuity starting date of the member's form of benefit is in a plan year beginning in 2004 or 2005, the actuarially equivalent straight life annuity is equal to the annual amount of the straight life annuity commencing at the same annuity starting date that has the same actuarial present value as the member's form of benefit, computed using whichever of the following produces the greater annual amount: (A) the interest rate specified and the mortality table (or other tabular factor) specified in Subsection F below for adjusting benefits in the same form; and (B) a 5.5-percent interest rate assumption and the applicable mortality table defined in Subsection F below. Notwithstanding the foregoing, distributions made prior to the effective date of this Section 3.30.020 (as set forth in Subsection A above) for which the 5.5-percent interest rate assumption may have been applicable but was not applied, do not have to be recalculated.

If the annuity starting date of the member's benefit is on or after the first day of the first plan year beginning in 2004 and before December 31, 2004, the application of this subsection b(ii) shall not cause the amount payable under the member's form of benefit to be less than the benefit calculated under the plan, taking into account the limitations of this Section 3.30.020, except that the actuarially equivalent straight life annuity is equal to the annual amount of the straight life annuity commencing at the same annuity starting date that has the same actuarial present value as the participant's form of benefit, computed using whichever of the following produces the greatest annual amount:

(a) The interest rate and the mortality table (or other tabular factor) specified in Section 3.30.130 of the plan for adjusting benefits in the same form;

(b) The applicable interest rate and the applicable mortality table defined in Subsection F below; and

(c) The applicable interest rate defined in Section 3.30.130 of the plan (as in effect on the last day of the last plan year beginning before January 1, 2004, under provisions of the plan then adopted and in effect) and the applicable mortality table defined in Subsection F below.

2. "Annuity starting date" shall mean the first day of the first period for which an amount is paid as an annuity or any other form.

3. "Compensation" shall mean, solely for purposes of this section,

a. Wages, salaries and fees for professional services and other amounts received (without regard to whether or not an amount is paid in cash) for personal services actually rendered in the course of employment with the employer to the extent that the amounts are includible in gross income (including but not limited to, commissions paid salesmen, compensation for services on the basis of a percentage of profits, commissions on insurance premiums, tips, bonuses, fringe benefits reimbursements, and expense allowances), and excluding the following:

(1) Employer contributions to a plan of deferred compensation (including a Code Section 457 plan) which are not includible in the employee's gross income for the taxable year in which contributed, or any distributions from a plan of deferred compensation; and

(2) Other amounts which received special tax benefits, including pick-up contributions, and contributions made by the employer (whether or not under a salary reduction agreement) towards the purchase of an annuity described in Code Section 403(b) (whether or not the amounts are actually excludable from the gross income of the eligible employee).

b. Notwithstanding subsection a above, effective January 1, 1998, compensation shall include salary deferrals under Sections 401(k), 403(b), 457 and 125 of the Code, however contributions picked up by the employer shall continue to be excluded.

c. For limitation years beginning on and after January 1, 2001, for purposes of applying the limitations of this section, compensation paid or made available during such limitation years shall include elective amounts that are not includible in the gross income of the eligible employee by reason of Code Section 132(f)(4).

d. For limitation years beginning on or after July 1, 2007, compensation for a limitation year shall also include compensation paid by the later of two and one-half months after an employee's severance from employment with the employer or the end of the limitation year that includes the date of the employee's severance from employment with the employer, if:

(1) The payment is regular compensation for services during the employee's regular working hours, or compensation for services outside the employee's regular working hours (such as overtime or shift differential), commissions, bonuses, or other similar payments, and, absent a severance from employment, the payments would have been paid to the employee while the employee continued in employment with the employer; or,

(2) The payment is for unused accrued bona fide sick, vacation or other leave that the employee would have been able to use if employment had continued; or

(3) The payment is received by the employee pursuant to a nonqualified unfunded deferred compensation plan and would have been paid at the same time if employment had continued, but only to the extent includible in gross income.

e. Any payments not described in subsection d above shall not be considered compensation if paid after severance from employment, even if they are paid by the later of two and one-half months after the date of severance from employment or the end of the limitation year that includes the date of severance from employment, except

(1) Payments to an individual who does not currently perform services for the employer by reason of qualified military service (within the meaning of Code section 414(u)(1)) to the extent these payments do not exceed the amounts the individual would have received if the individual had continued to perform services for the employer rather than entering qualified military service; or

(2) Compensation paid to a member who is permanently and totally disabled, as defined in Code Section 22(e)(3), provided, salary continuation applies to all members who are permanently and totally disabled for a fixed or determinable period, or the member was not a highly compensated employee, as defined in Code Section 414(q), immediately before becoming disabled.

f. Back pay, within the meaning of Section 1.415(c)-2(g)(8) of the Treasury Regulations, shall be treated as compensation for the limitation year to which the back pay relates to the extent the back pay represents wages and compensation that would otherwise be included under this definition.

4. "Defined benefit dollar limitation" shall mean, effective for limitation years ending after December 31, 2001, one hundred sixty [thousand] dollars, as automatically adjusted, effective January 1 of each year, by the Secretary of the Treasury under Code Section 415(d) in such manner as the secretary shall prescribe, and payable in the form of a straight-life annuity. A limitation as adjusted under Code Section 415(d) will apply to limitation years ending with or within the calendar year for which the adjustment applies, but a member's benefits shall not reflect the adjusted limit prior to January 1 of that calendar year. The automatic annual adjustment provided under Code Section 415(d) shall apply to members who have had a separation from employment.

5. "Employer" shall mean, for purposes of this Section 3.30.020, the Metropolitan Government of Nashville and Davidson County, Tennessee, and any agency that adopts this plan.

6. "Limitation year" shall mean the plan year. All qualified plans maintained by the employer shall use the same limitation year. If the limitation year is amended to a different twelve consecutive month period, then the new limitation year shall begin on a date within the limitation year in which the amendment is made.

7. "Maximum permissible amount" shall mean the defined benefit dollar limitation (adjusted where required and to the extent applicable pursuant to subsections a and b below).

a. Adjustment for Less Than Ten Years of Participation or Service. If the member has less than ten years of participation in the plan, the defined benefit dollar limitation shall be multiplied by a fraction (1) the numerator of which is the number of years (or part thereof, but not less than one year) of participation in the plan, and (2) the denominator of which is ten. However, the adjustment made by the preceding sentence shall not apply for a member who becomes disabled by reason of personal injuries or sickness, or as a result of the death of the member, regardless of such member's years of participation.

b. Adjustment of Defined Benefit Dollar Limitation for Benefit Commencement Before Age Sixty-two or after Age Sixty-five. Effective for benefits commencing in limitation years ending after December 31, 2001, the defined benefit dollar limitation shall be adjusted if the annuity starting date of the member's benefit is before age sixty-two or after age sixty-five. If the annuity starting date is before age sixty-two, the defined benefit dollar limitation shall be adjusted under subparagraph b(1) below, as modified by subparagraph b(3). If the annuity starting date is after age sixty-five, the defined benefit dollar limitation shall be adjusted under subparagraph b(2) below, as modified by subparagraph b(3).

(1) Adjustment of Defined Benefit Dollar Limitation for Benefit Commencement Before Age Sixty-two.

(A) Limitation Years Beginning Before July 1, 2007. If the annuity starting date for the member's benefit is prior to age sixty-two and occurs in a limitation year beginning before July 1, 2007, the defined benefit dollar limitation for the member's annuity starting date is the annual amount of a benefit payable in the form of a straight life annuity commencing at the member's annuity starting date that is the actuarial equivalent of the defined benefit dollar limitation (adjusted under subsection a above for years of participation less than ten, if required) with actuarial equivalence computed using whichever of the following produces the smaller annual amount: (i) the interest rate specified and the mortality table (or other tabular factor) specified in Section 3.30.130 of the plan; or (ii) a five percent interest rate assumption and the applicable mortality table as defined in Subsection F below.

(B) Limitation Years Beginning on or After July 1, 2007.

(i) Plan Does Not Have Immediately Commencing Straight Life Annuity Payable at Both Age Sixty-two and the Age of Benefit Commencement. If the annuity

starting date for the member's benefit is prior to age sixty-two and occurs in a limitation year beginning on or after July 1, 2007, and the plan does not have an immediately commencing straight life annuity payable at both age sixty-two and the age of benefit commencement, the defined benefit dollar limitation for the member's annuity starting date is the annual amount of a benefit payable in the form of a straight life annuity commencing at the member's annuity starting date that is the actuarial equivalent of the defined benefit dollar limitation (adjusted under subsection 7a above for years of participation less than ten, if required) with actuarial equivalence computed using a five percent interest rate assumption and the applicable mortality table for the annuity starting date as defined in Section 3.30.120 of the plan (and expressing the member's age based on completed calendar months as of the annuity starting date).

(ii) Plan Has Immediately Commencing Straight Life Annuity Payable at Both Age Sixty-two and the Age of Benefit Commencement. If the annuity starting date for the member's benefit is prior to age sixty-two and occurs in a limitation year beginning on or after July 1, 2007, and the plan has an immediately commencing straight life annuity payable at both age sixty-two and the age of benefit commencement, the defined benefit dollar limitation for the member's annuity starting date is the lesser of the limitation determined under subsection b(1)(B)(i) above and the defined benefit dollar limitation (adjusted under subsection 7a for years of participation less than ten, if required) multiplied by the ratio of the annual amount of the immediately commencing straight life annuity under the plan at the member's annuity starting date to the annual amount of the immediately commencing straight life annuity under the plan at age sixty-two, both determined without applying the limitations of this Section 3.30.020.

(C) Exception for qualified members. Notwithstanding the other provisions of this subsection (1), no age adjustment shall be made to the defined benefit dollar limitation for a member who has at least fifteen years of service in the plan as:

(i) A full-time employee of a governmental police or fire department providing police protection, firefighting services, or emergency medical services, or

(ii) A member of the Armed Forces of the United States.

(D) Exception for survivor and disability benefits. Notwithstanding the other provisions of this subsection (1), no age adjustment shall be made to the defined benefit dollar limitation for a member who becomes disabled by reason of personal injuries or sickness, or as a result of the death of the member.

(2) Adjustment of Defined Benefit Dollar Limitation for Benefit Commencement After Age Sixty-five.

(A) Limitation Years Beginning Before July 1, 2007. If the annuity starting date for the member's benefit is after age sixty-five and occurs in a limitation year beginning before July 1, 2007, the defined benefit dollar limitation for the member's annuity starting date is the annual amount of a benefit payable in the form of a straight life annuity commencing at the member's annuity starting date that is the actuarial equivalent of the defined benefit dollar limitation (adjusted under subsection 7a above for years of participation less than ten, if required) with actuarial equivalence computed using whichever of the following produces the smaller annual amount: (i) the interest rate and the mortality table (or other tabular factor) specified in Section 3.30.130; or (ii) a five-percent interest rate assumption and the applicable mortality table defined in Subsection F below.

(B) Limitation Years Beginning on or After July 1, 2007.

(i) Plan Does Not Have Immediately Commencing Straight Life Annuity Payable at Both Age Sixty-five and the Age of Benefit Commencement. If the annuity starting date for the member's benefit is after age sixty-five and occurs in a limitation year beginning on or after July 1, 2007, and the plan does not have an immediately commencing straight life annuity payable at both age sixty-five and the age of benefit commencement, the defined benefit dollar limitation at the member's annuity starting date is the annual amount of a benefit payable in the form of a straight life annuity commencing at the member's annuity starting date that is the actuarial equivalent of the defined benefit dollar limitation (adjusted under subsection 7a above for years of participation less than ten, if required), with actuarial equivalence computed using a five percent interest rate assumption and the applicable mortality table for that annuity starting date as defined in Subsection F below (and expressing the member's age based on completed calendar months as of the annuity starting date).

(ii) Plan Has Immediately Commencing Straight Life Annuity Payable at Both Age Sixty-five and the Age of Benefit Commencement. If the annuity starting date for the member's benefit is after age sixty-five and occurs in a limitation year beginning on or after July 1, 2007, and the plan has an immediately commencing straight life annuity payable at both age sixty-five and the age of benefit commencement, the defined benefit dollar limitation at the member's annuity starting date is the lesser of the limitation determined under subsection b(2)(B)(i) and the defined benefit dollar limitation (adjusted under subsection 7a above for years of participation less than ten, if required) multiplied by the ratio of the annual

amount of the adjusted immediately commencing straight life annuity under the plan at the member's annuity starting date to the annual amount of the adjusted immediately commencing straight life annuity under the plan at age sixty-five, both determined without applying the limitations of this Section 3.30.020. For this purpose, the adjusted immediately commencing straight life annuity under the plan at the member's annuity starting date is the annual amount of such annuity payable to the member, computed disregarding the member's accruals after age sixty-five but including actuarial adjustments even if those actuarial adjustments are used to offset accruals; and the adjusted immediately commencing straight life annuity under the plan at age sixty-five is the annual amount of such annuity that would be payable under the plan to a hypothetical member who is age sixty-five and has the same accrued benefit as the member.

(3) Notwithstanding the other requirements of this subsection 7b, no adjustment shall be made to the defined benefit dollar limitation to reflect the probability of a member's death between the annuity starting date and age sixty-two, or between age sixty-five and the annuity starting date, as applicable, if benefits are not forfeited upon the death of the member prior to the annuity starting date. To the extent benefits are forfeited upon death before the annuity starting date, such an adjustment shall be made. For this purpose, no forfeiture shall be treated as occurring upon the member's death if the plan does not charge members for providing a qualified preretirement survivor annuity, as defined in Code Section 417(c) upon the member's death.

c. Minimum benefit permitted. Notwithstanding anything else in this definition to the contrary, the benefit otherwise accrued or payable to a member under this plan shall be deemed not to exceed the maximum permissible benefit if:

(1) The retirement benefits payable for a limitation year under any form of benefit with respect to such member under this plan and under all other defined benefit plans (without regard to whether a plan has been terminated) ever maintained by the employer do not exceed ten thousand dollars multiplied by a fraction (A) the numerator of which is the member's number of years (or part thereof, but not less than one year) of service (not to exceed ten) with the employer, and (B) the denominator of which is ten; and

(2) The employer has not at any time maintained a defined contribution plan in which the member participated (for this purpose, mandatory employee contributions under a defined benefit plan, individual medical accounts under Code Section 401(h), and accounts for postretirement medical benefits established under Code Section 419A(d)(1) are not considered a separate defined contribution plan).

8. "Year of participation" shall mean each accrual computation period (computed to fractional parts of a year) for which the following conditions are met: (a) the member is credited with at least the number of hours of service for benefit accrual purposes, required under the terms of the plan in order to accrue benefit service, and (b) the member is included as a member under the eligibility provisions of the plan for at least one day of the period of benefit service. If these two conditions are met, the portion of a year of participation credited to the member shall equal the amount of benefit service credited to the member for such accrual computation period. A member who is permanently and totally disabled within the meaning of Section 415(c)(3)(C)(i) of the Code for an accrual computation period shall receive a year of participation with respect to that period. In addition, for a member to receive a year of participation (or part thereof) for an accrual computation period, the plan must be established no later than the last day of such accrual computation period. In no event will more than one year of participation be credited for any twelve-month period.

F. Actuarial equivalence. All actuarial equivalence determinations in this Section 3.30.020 shall be made in accordance with this subsection F. For actuarial equivalence unrelated to this section and the requirements of Section 415 of the Code, see Section 3.30.40 of the plan.

Actuarial equivalence determinations include: adjustment for early payment; adjustment for delayed payment; adjustment for payment in a form other than a life annuity; computation of the benefit attributable to employee contributions; and all other determinations of a similar nature, as required by context.

1. On or After January 1, 2000, through December 31, 2007. With respect to participants whose termination of employment is on or after January 1, 2000, and for benefits commencing on or before December 31, 2007, the actuarial equivalent value of any distribution other than a non-decreasing annuity form of payment (as defined in the Treasury Regulations issued pursuant to Code Section 417(e)) shall be determined using the GATT interest rate and GATT mortality table described below:

Interest: With respect to any single sum payment, the GATT interest rate is the annual rate of interest on thirty-year treasury securities for the second full month prior to the first day of the plan year in which such single sum payment is made. For the purposes of determining an actuarial equivalent amount (other than nondecreasing life annuities payable for a period not less than the life of

a participant or, in the case of a pre-retirement survivor annuity, the life of the surviving spouse) the GATT interest rate shall be the annual interest rate on thirty-year treasury securities determined as of the second full month prior to the first day of the plan year in which the annuity starting date occurs.

Mortality: The prevailing Internal Revenue Service Commissioners' standard table (described in Code Section 807(d)(5)(A), without regard to any other subparagraphs of Code Section 807(d)(5)) used to determine reserves for group annuity contracts issued on the date as of which the present value is being determined (which as of the effective date of Section is the table prescribed in Rev. Rul. 2001-62).

2. On or After January 1, 2008. Notwithstanding the foregoing, with respect to benefits commencing on or after January 1, 2008, the amount of a single sum distribution (or the amount of distributions in any form other than a nondecreasing annuity) shall not be less than such amount determined using the applicable mortality table and the applicable interest rate. For annuity starting dates occurring on or after January 1, 2008, "applicable mortality table" means the mortality table prescribed by the Secretary of the Treasury pursuant to Code Section 417(e)(3)(B) for the plan year containing the annuity starting date and "applicable interest rate" means the adjusted first, second, and third segment rates applied under the rules similar to the rules of Code Section 430(h)(2)(C) for the November which precedes the plan year that includes the annuity starting date. For this purpose, the first, second, and third segment rates are the first, second, and third segment rates which would be determined under Code Section 430(h)(2)(C) if:

a. Code Section 430(h)(2)(D) were applied by substituting the average yields for the month described in clause (2) below for the average yields for the twenty-four-month period described in such section, and

b. Code Section 430(h)(2)(G)(i)(II) were applied by substituting "Section 417(e)(3)(A)(ii)(II) (as in effect for the plan year beginning in 2007)" for "Section 412(b)(5)(B)(ii)(II)," and

c. The applicable percentage under Code Section 430(h)(2)(G) is treated as being twenty percent in 2008, forty percent in 2009, sixty percent in 2010, and eighty percent in 2011.

In the event this section is amended, the actuarial equivalent of a member's accrued benefit on or after the date of change shall be determined (unless otherwise permitted by law or Treasury Regulation) as the greater of (1) the actuarial equivalent of the accrued benefit as of the date of change computed on the old basis, or (2) the actuarial equivalent of the total accrued benefit computed on the new basis.

G. Notwithstanding any provision of this Section 3.30.020, the application of this Section shall be subject to such rules as may be prescribed by the Secretary of the Treasury. (Ord. BL2015-1007 § 1, 2015; Ord. BL2004-128 § 1, 2004; Ord. 2002-1060 § 1 (part), 2002)

3.30.030 Limitation on earnings.

A. For purposes of computing any benefit under the plan or any contribution made to the plan, there shall be a limit on the amount of compensation that may be considered in any plan year for any member. The limit shall be the amount specified in this section as described below. The limit contained in this Section 3.30.030 shall apply to earnings as defined in Section 3.08.010 and to compensation as defined in Section 3.30.020.

B. Increase in Compensation Limit.

1. Increase in Limit. The annual compensation of each noneligible member taken into account in determining benefit accruals in any plan year beginning after December 31, 2001, shall not exceed $200,000. Annual compensation means compensation during the plan year or such other consecutive twelve-month period over which compensation is otherwise determined under the plan (the determination period). For purposes of determining benefit accruals in a plan year beginning after December 31, 2001, the annual compensation limit for noneligible members under this section for determination periods beginning before January 1, 2002, shall be two hundred thousand dollars. Notwithstanding the foregoing, in the case of an eligible member, the annual compensation limit of Code Section 401(a)(17) shall not apply to the extent that the application of the limitation would reduce the amount of compensation that was allowed to be taken into account under the plan as in effect on July 1, 1993. For these purposes, an eligible member is an individual who first became a member in the plan prior to the first day of the first plan year beginning after the earlier of: (i) the last day of the plan year by which a plan amendment to reflect the amendments made by Section 13212 of the Omnibus Budget Reconciliation Act of 1993 is both adopted and effective; or (ii) December 31, 1995.

2. Cost-of-Living Adjustment. The two hundred thousand dollar limit on annual compensation in subsection (1) above shall be adjusted for cost-of-living increases in accordance with Section 401(a)(17)(B) of the Code. The cost-of-living adjustment in effect for a calendar year applies to annual compensation for the determination period that begins with or within such calendar year. (Ord. BL2015-1007 § 2, 2015; Ord. 2002-1060 § 1 (part), 2002)

3.30.040 Actuarial equivalence.

A. All actuarial equivalence determinations in this plan shall be made in accordance with this section. Actuarial equivalence determinations include: adjustment for early payment; adjustment for delayed payment; adjustment for payment in a form other than a life annuity and all other determinations of a similar nature, as required by context. Actuarial equivalence shall mean, for purposes of determining optional benefit payment forms, a benefit of equivalent value based on the following:

1. For participants with benefit commencement dates on and after January 1, 1996:

a. Interest eight percent per annum;

b. Mortality: Participants - a table constructed from the 1983 Group Annuity Mortality Table by assuming a population composition consisting of sixty-six and two-thirds percent male participants and thirty-three and one-third percent female participants;

c. Beneficiaries - a table constructed from the 1983 Group Annuity Mortality Table by assuming a population composition consisting of thirty-three and one-third percent male participants and sixty-six and two-thirds percent female participants.

2. For participants with benefit commencement dates before January 1, 1996:

a. Interest—Seven and one half percent per annum;

b. Mortality for general government participants:

i. Participants - the 1951 Group Annuity Mortality Table for males projected to 1960.

ii. Beneficiaries - the 1951 Group Annuity Mortality Table for females projected to 1960.

c. Mortality for police and fire participants:

i. Participants - the mortality factors adopted by the employee benefit board for this purpose.

ii. Beneficiaries - the 1951 Group Annuity Mortality Table for females projected to 1960.

d. Mortality for early retirement:

i. General government participants - the mortality factors adopted by the employee benefit board for this purpose.

ii. Police and fire participants - the mortality factors adopted by the employee benefit board for this purpose. (Ord. 2002-1060 § 1 (part), 2002)

3.30.050 Minimum distributions.

A. General Rules.

1. Precedence and Effective Date. Subject to the optional form of benefits permitted under the terms of the plan, the requirements of this Section 3.30.050 shall apply to any distribution of a member's interest and will take precedence over any inconsistent provisions of this plan. Unless otherwise specified, the provisions of this Section 3.30.050 apply to calendar years beginning after December 31, 2002.

2. Requirements of Regulations Incorporated. All distributions required under this Section 3.30.050 shall be determined and made in accordance with Code Section 401(a)(9), including the incidental death benefit requirement in Code Section 401(a)(9)(G), and the Regulations thereunder.

3. Limits on Distribution Periods. As of the first distribution calendar year, distributions to a member, if not made in a single sum, may only be made over one of the following periods:

a. The life of the member,

b. The joint lives of the member and a designated beneficiary,

c. A period certain not extending beyond the life expectancy of the member, or

d. A period certain not extending beyond the joint life and last survivor expectancy of the member and a designated beneficiary.

4. Grandfather Benefits. In the case of an annuity distribution option provided under the optional forms of this plan as in effect on April 17, 2002, the plan will not fail to satisfy the requirements of Section 401(a)(9) of the Code merely because the annuity payments do not satisfy the requirements of this section.

5. Nongrandfathered Benefits. For calendar years 2003, 2004 and 2005, the reasonable and good faith standard extends to the end of the calendar year that contains the 90th day after the opening of the first legislative session of the legislative body with the authority to amend the plan that begins on or after June 15, 2004, if such 90th day is later than December 31, 2005.

B. Time and Manner of Distribution.

1. Required Beginning Date. The member's entire interest will be distributed, or begin to be distributed, no later than the member's required beginning date as referenced in Section 3.30.050(H)(6) hereof.

2. Death of Member Before Distributions Begin. If the member dies before distributions begin, the member's entire interest will be distributed, or begin to be distributed, no later than as follows:

a. If the member's surviving spouse is the member's sole designated beneficiary, then distributions to the surviving spouse will begin by December 31 of the calendar year immediately following the calendar year in which the member died, or by December 31 of the calendar year in which the member would have attained age seventy and one-half, if later.

b. If the member's surviving spouse is not the member's sole designated beneficiary, then, unless an election to the contrary is made pursuant to this subsec-

tion (b), distributions to the designated beneficiary will begin by December 31 of the calendar year containing the fifth anniversary of the member's death. The foregoing will apply to all distributions other than distributions to a surviving spouse.

Notwithstanding the preceding paragraph, a member or designated beneficiary may elect to have distributions to the designated beneficiary begin by December 31 of the calendar year immediately following the calendar year in which the member died. Such election must be made no later than the earlier of September 30 of the calendar year in which distributions would be required to begin under Section 3.30.050(B)(2) hereof, or by September 30 of the calendar year which contains the fifth anniversary of the member's (or, if applicable, surviving spouse's) death. If neither the member nor beneficiary makes such an election, distributions will be made in accordance with the first paragraph of this subsection (b).

c. If there is no designated beneficiary as of September 30 of the year following the year of the member's death, the member's entire interest will be distributed by December 31 of the calendar year containing the fifth anniversary of the member's death.

d. If the member's surviving spouse is the member's sole designated beneficiary and the surviving spouse dies after the member but before distributions to the surviving spouse are required to begin, this subsection (B)(2), other than subparagraph (a), will apply as if the surviving spouse were the member.

For purposes of this subsection (B)(2) and Section 3.30.050(E), unless Section 3.30.050(B)(2)(d) applies, distributions are considered to begin on the member's required beginning date. If Section 3.30.050(B)(2)(d) applies, distributions are considered to begin on the date distributions are required to begin to the surviving spouse under Section 3.30.050(B)(2)(a). If distributions under an annuity meeting the requirements of this Section 3.30.050 commence to the member before the member's required beginning date (or to the member's surviving spouse before the date distributions are required to begin to the surviving spouse under Section 3.30.050(b)(2)(A)), the date distributions are considered to begin is the date distributions actually commence.

3. Forms of Distribution. Unless the member's interest is distributed in the form of an annuity purchased from an insurance company or in a single sum on or before the required beginning date, as of the first distribution calendar year distributions will be made in accordance with subsections (C), (D) and (E) of this Section 3.30.050. If the member's interest is distributed in the form of an annuity purchased from an insurance company, distributions thereunder will be made in accordance with the requirements of Code Section 401(a)(9) and Section 1.401(a)(9) of the Regulations. Any part of the member's interest which is in the form of an individual account described in Code Section 414(k) will be distributed in a manner satisfying the requirements of Code Section 401(a)(9) and Section 1.401(a)(9) of the Regulations that apply to individual accounts.

C. Determination of Amount to be Distributed Each Year.

1. General Annuity Requirements. If the member's interest is to be paid in the form of annuity distributions under the plan, payments under the annuity shall satisfy the following requirements:

a. The annuity distributions will be paid in periodic payments made at uniform intervals not longer than one year;

b. The distribution period will be over a life (or lives) or over a period certain not longer than the period described in Sections 3.30.050(D) or (E) hereof;

c. Once payments have begun over a period, the period will be changed only in accordance with Section 3.30.050(F) hereof;

d. Payments will either be nonincreasing or increase only as follows:

i. By an annual percentage increase that does not exceed the percentage increase in an eligible cost-of-living index for a twelve-month period ending in the year during which the increase occurs or a prior year;

ii. By a percentage increase that occurs at specified times and does not exceed the cumulative total of annual percentage increases in an eligible cost-of-living index since the annuity starting date, or if later, the date of the most recent percentage increase;

iii. By a constant percentage of less than five percent per year, applied not less frequently than annually;

iv. As a result of dividend or other payments that result from actuarial gains, provided:

(a) Actuarial gain is measured not less frequently than annually,

(b) The resulting dividend or other payments are either paid no later than the year following the year for which the actuarial experience is measured or paid in the same form as the payment of the annuity over the remaining period of the annuity (beginning no later than the year following the year for which the actuarial experience is measured),

(c) The actuarial gain taken into account is limited to actuarial gain from investment experience,

(d) The assumed interest rate used to calculate such actuarial gains is not less than three percent, and

(e) The annuity payments are not increased by a constant percentage as described in Section 3.30.050(C)(1)(d)iii hereof;

v. To the extent of the reduction in the amount of the member's payments to provide for a survivor benefit, but only if there is no longer a survivor benefit because the beneficiary whose life was being used to determine the distribution period described in subsection (D) below dies or is no longer the member's beneficiary pursuant to a qualified domestic relations order within the meaning of Code Section 414(p);

vi. To provide a final payment upon the member's death not greater than the excess of the actuarial present value of the member's accrued benefit (within the meaning of Code Section 411(a)(7)) calculated as of the annuity starting date using the applicable interest rate and mortality table defined in Section 1.2 of the plan (or, if greater, the total amount of employee contributions, if any) over the total of payments before the member's death;

vii. To allow a beneficiary to convert the survivor portion of a joint and survivor annuity into a single sum distribution upon the member's death; or

viii. To pay increased benefits that result from a plan amendment.

2. Amount Required to be Distributed by Required Beginning Date and Later Payment Intervals. The amount that must be distributed on or before the member's required beginning date (or, if the member dies before distributions begin, the date distributions are required to begin under Section 3.30.050(B)(2)(a) or (b) hereof) is the payment that is required for one payment interval. The second payment need not be made until the end of the next payment interval even if that payment interval ends in the next calendar year. All of the member's benefit accruals as of the last day of the first distribution calendar year will be included in the calculation of the amount of the annuity payments for payment intervals ending on or after the member's required beginning date.

3. Additional Accruals After First Distribution Calendar Year. Any additional benefits accruing to the member in a calendar year after the first distribution calendar year will be distributed beginning with the first payment interval ending in the calendar year immediately following the calendar year in which such benefit accrues.

D. Requirements For Annuity Distributions That Commence During Member's Lifetime.

1. Joint Life Annuities Where the Beneficiary Is Not the Member's Spouse. If the member's interest is being distributed in the form of a joint and survivor annuity for the joint lives of the member and a nonspouse beneficiary, annuity payments to be made on or after the member's required beginning date to the designated beneficiary after the member's death must not at any time exceed the applicable percentage of the annuity payment for such period that would have been payable to the member, using the table set forth in Section 1.401(a)(9)-6, Q&A2(c)(2), in the manner described in Q&A 2(c)(1), of the Regulations, to determine the applicable percentage. If the form of distribution combines a joint and survivor annuity for the joint lives of the member and a nonspouse beneficiary and a period certain annuity, the requirement in the preceding sentence will apply to annuity payments to be made to the designated beneficiary after the expiration of the period certain.

2. Period Certain Annuities. Unless the member's spouse is the sole designated beneficiary and the form of distribution is a period certain and no life annuity, the period certain for an annuity distribution commencing during the member's lifetime may not exceed the applicable distribution period for the member under the Uniform Lifetime Table set forth in Section 1.401(a)(9)-9, Q&A-2, of the Regulations for the calendar year that contains the annuity starting date. If the annuity starting date precedes the year in which the member reaches age seventy, the applicable distribution period for the member is the distribution period for age seventy under the Uniform Lifetime Table set forth in Section 1.401(a)(9)-9, Q&A-2, of the Regulations plus the excess of seventy over the age of the member as of the member's birthday in the year that contains the annuity starting date. If the member's spouse is the member's sole designated beneficiary and the form of distribution is a period certain and no life annuity, the period certain may not exceed the longer of the member's applicable distribution period, as determined under this subsection (d)(2), or the joint life and last survivor expectancy of the member and the member's spouse as determined under the Joint and Last Survivor Table set forth in Section 1.401(a)(9)-9, Q&A-3, of the Regulations, using the member's and spouse's attained ages as of the member's and spouse's birthdays in the calendar year that contains the annuity starting date.

E. Requirements For Minimum Distributions After the Member's Death.

1. Death After Distributions Begin. If the member dies after distribution of his or her interest begins in the form of an annuity meeting the requirements of this Section 3.30.050, the remaining portion of the member's interest will continue to be distributed over the remaining period over which distributions commenced.

2. Death Before Distributions Begin.

a. Member Survived by Designated Beneficiary. Subject to subsection (1) below, if the member dies before distributions of his or her interest begins and there is a designated beneficiary, then the member's entire interest will be distributed to the designated beneficiary by December 31 of the calendar year containing the fifth

anniversary of the member's death. The foregoing will apply to all distributions other than distributions to a surviving spouse.

Notwithstanding the preceding paragraph, a member or designated beneficiary may elect to have the member's entire interest distributed, beginning no later than the time described in Section 3.30.050(B)(2)(a) or (b), over the life of the designated beneficiary or over a period certain not exceeding:

i. Unless the annuity starting date is before the first distribution calendar year, the life expectancy of the designated beneficiary determined using the beneficiary's age as of the beneficiary's birthday in the calendar year immediately following the calendar year of the member's death; or

ii. If the annuity starting date is before the first distribution calendar year, the life expectancy of the designated beneficiary determined using the beneficiary's age as of the beneficiary's birthday in the calendar year that contains the annuity starting date.

The foregoing election must be made no later than the earlier of September 30 of the calendar year in which distributions would be required to begin under Section 3.30.050(B)(2) hereof, or by September 30 of the calendar year which contains the fifth anniversary of the member's (or, if applicable, surviving spouse's) death. If neither the member nor beneficiary makes such an election, distributions will be made in accordance with the first paragraph of this subsection (A).

b. No Designated Beneficiary. If the member dies before the date distributions begin and there is no designated beneficiary as of September 30 of the year following the year of the member's death, distribution of the member's entire interest will be completed by December 31 of the calendar year containing the fifth anniversary of the member's death.

c. Death of Surviving Spouse Before Distributions to Surviving Spouse Begin. If the member dies before the date distribution of his or her interest begins, the member's surviving spouse is the member's sole designated beneficiary, and the surviving spouse dies before distributions to the surviving spouse begin, this Section 3.30.050(E) will apply as if the surviving spouse were the member, except that the time by which distributions must begin will be determined without regard to Section 3.30.050(B)(2)(a).

F. Changes to Annuity Payment Period.

1. Permitted Changes. An annuity payment period may be changed only in association with an annuity payment increase described in Section 3.30.050(C)(1)(d) hereof or in accordance with Section 3.30.050(F)(2) hereof.

2. Reannuitization. An annuity payment period may be changed and the annuity payments modified in accordance with that change if the conditions in subsection (3) below are satisfied and:

a. The modification occurs when the member retires or in connection with a plan termination;

b. The payment period prior to modification is a period certain without life contingencies; or

c. The annuity payments after modification are paid under a qualified joint and survivor annuity over the joint lives of the member and a designated beneficiary, the member's spouse is the sole designated beneficiary, and the modification occurs in connection with the member's becoming married to such spouse.

3. Conditions. The conditions in this subsection (3) are satisfied if:

a. The future payments after the modification satisfy the requirements of Code Section 401(a)(9), Section 1.401(a)(9) of the Regulations, and this Section 3.30.050 (determined by treating the date of the change as a new annuity starting date and the actuarial present value of the remaining payments prior to modification as the entire interest of the member);

b. For purposes of Code Sections 415 and 417, the modification is treated as a new annuity starting date;

c. After taking into account the modification, the annuity (including all past and future payments) satisfies the requirements of Code Section 415 (determined at the original annuity starting date, using the interest rates and mortality tables applicable to such date); and

d. The end point of the period certain, if any, for any modified payment period is not later than the end point available to the employee at the original annuity starting date under Code Section 401(a)(9) and this Section 3.30.050.

G. Payments to a Surviving Child.

1. Special rule. For purposes of this Section 3.30.050, payments made to a member's surviving child until the child reaches the age of majority (or dies, if earlier) shall be treated as if such payments were made to the surviving spouse to the extent the payments become payable to the surviving spouse upon cessation of the payments to the child.

2. Age of majority. For purposes of this subsection (g), a child shall be treated as having not reached the age of majority if the child has not completed a specified course of education and is under the age of twenty-six. In addition, a child who is disabled within the meaning of § 72(m)(7) when the child reaches the age of majority shall be treated as having not reached the age of majority so long as the child continues to be disabled.

H. Definitions. The following terms used in this Section 3.30.050 shall have the meaning ascribed below:

1. Actuarial gain. The difference between an amount determined using the actuarial assumptions (i.e., investment return, mortality, expense, and other similar assumptions) used to calculate the initial payments before adjustment for any increases and the amount determined under the actual experience with respect to those factors. Actuarial gain also includes differences between the amount determined using actuarial assumptions when an annuity was purchased or commenced and such amount determined using actuarial assumptions used in calculating payments at the time the actuarial gain is determined.

2. Designated beneficiary. The individual who is designated by the member (or the member's surviving spouse) as the beneficiary of the member's interest under the plan and who is the designated beneficiary under Code Section 401 (a)(9) of the Code and Section 1.401(a)(9)-4 of the Regulations.

3. Distribution calendar year. A calendar year for which a minimum distribution is required. For distributions beginning before the member's death, the first distribution calendar year is the calendar year immediately preceding the calendar year which contains the member's Required Beginning Date. For distributions beginning after the member's death, the first distribution calendar year is the calendar year in which distributions are required to begin pursuant to Section 3.30.050(B)(2) hereof.

4. Eligible cost-of-living index. An index described in paragraphs (b)(2), (b)(3) or (b)(4) of Section 1.401(a)(9)-6, Q&A-14, of the Regulations.

5. Life expectancy. Life expectancy as computed by use of the Single Life Table in Section 1.401(a)(9)-9, Q&A-1, of the Regulations.

6. Required beginning date.

a. The required beginning date of a member is April 1 of the calendar year following the later of the calendar year in which the member attains age seventy and one-half or the calendar year in which the member retires.

b. Any member attaining age seventy and one-half in years after 1995 but before 2002 may elect by April 1 of the calendar year following the calendar year in which the member attains age seventy and one-half, (or by December 31, 1997 in the case of a member attaining age seventy and one-half in 1996) to defer distributions until April 1 of the calendar year following the calendar year in which the member retires. If no such election is made the member will begin receiving distributions by April 1 of the calendar year following the year in which the member attained age seventy and one-half.

I. TEFRA § 242(b)(2) Elections.

1. Notwithstanding the other requirements of this Section 3.30.050 and subject to the requirements of the optional forms of benefits permitted under the terms of the plan hereof, distribution on behalf of any employee who has made a designation under Section 242(b)(2) of the Tax Equity and Fiscal Responsibility Act (a "Section 242(b)(2) election") may be made in accordance with all of the following requirements (regardless of when such distribution commences):

a. The distribution by the plan is one which would not have disqualified such plan under Code Section 401(a)(9) as in effect prior to amendment by the Deficit Reduction Act of 1984.

b. The distribution is in accordance with a method of distribution designated by the employee whose interest in the plan is being distributed or, if the employee is deceased, by a beneficiary of such employee.

c. Such designation was in writing, was signed by the employee or the beneficiary, and was made before January 1, 1984.

d. The employee had accrued a benefit under the plan as of December 31, 1983.

e. The method of distribution designated by the employee or the beneficiary specifies the time at which distribution will commence, the period over which distributions will be made, and in the case of any distribution upon the employee's death, the beneficiaries of the employee listed in order of priority.

2. A distribution upon death will not be covered by this transitional rule unless the information in the designation contains the required information described above with respect to the distributions to be made upon the death of the employee.

3. For any distribution which commences before January 1, 1984, but continues after December 31, 1983, the employee, or the beneficiary, to whom such distribution is being made, will be presumed to have designated the method of distribution under which the distribution is being made if the method of distribution was specified in writing and the distribution satisfies the requirements in subsections (1)(a) and (e) above.

4. If a designation is revoked any subsequent distribution must satisfy the requirements of Code Section 401(a)(9) and the Regulations thereunder. If a designation is revoked subsequent to the date distributions are required to begin, the plan must distribute by the end of the calendar year following the calendar year in which the revocation occurs the total amount not yet distributed which would have been required to have been distributed to satisfy Code Section 401(a)(9) and the Regulations thereunder, but for the Section 242(b)(2) election. For calendar years beginning after December 31, 1988, such

distributions must meet the minimum distribution incidental benefit requirements. Any changes in the designation will be considered to be a revocation of the designation. However, the mere substitution or addition of another beneficiary (one not named in the designation) under the designation will not be considered to be a revocation of the designation, so long as such substitution or addition does not alter the period over which distributions are to be made under the designation, directly or indirectly (for example, by altering the relevant measuring life).

5. In the case in which an amount is transferred or rolled over from one plan to another plan, the rules in Section 1.401(a)(9)-8, Q&A-14 and Q&A-15 of the Regulations shall apply. (Ord. BL2015-1007 § 3, 2015; Ord. 2002-1060 § 1 (part), 2002)

3.30.060 Right to direct rollover.

A. This section applies to distributions made on or after January 1, 2002. Notwithstanding any provision of the plan to the contrary that would otherwise limit a distributee's election under this section, a distributee may elect, at the time and in the manner prescribed by the employee benefit board, to have any portion of an eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

B. Definitions.

1. Eligible rollover distribution: An eligible rollover distribution is any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include: any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten years or more; any distribution to the extent such distribution is required under Section 401(a)(9) of the Code; and the portion of any distribution that is not includible in gross income (determined without regard to the exclusion for net unrealized appreciation with respect to employer securities), any hardship distribution (if allowed under the plan), and any other distribution that is reasonably expected to total less than two hundred dollars during a year.

A portion of a distribution shall not fail to be an "eligible rollover distribution" merely because the portion consists of after-tax employee contributions which are not includible in gross income. However, such portion may be transferred only to an individual retirement account or annuity described in Code Section 408(a) or (b), or to a qualified defined contribution plan described in Code Section 401(a) or 403(a) that agrees to separately account for amounts so transferred, including separately accounting for the portion of such distribution which is includible in gross income and the portion of such distribution which is not so includible.

2. Eligible retirement plan: An eligible retirement plan is an individual retirement account described in Code Section 408(a), an individual retirement annuity described in Code Section 408(b), an annuity plan described in Code Section 403(a), or a qualified trust described in Code Section 401(a), that accepts the distributee's eligible rollover distribution. An eligible retirement plan shall also mean an annuity contract described in Code Section 403(b) and an eligible plan under Code Section 457(b) which is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or political subdivision of a state and which agrees to separately account for amounts transferred into such plan from this plan. The definition of eligible retirement plan shall also apply in the case of a distribution to a surviving spouse, or to a spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Code Section 414(p).

3. Distributee: A distributee includes an employee or former employee. In addition, the employee's or former employee's surviving spouse and the employee's or former employee's spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Code, are distributees with regard to the interest of the spouse or former spouse.

A distributee also includes the participant's nonspouse beneficiary. However, in the case of a nonspouse beneficiary, the rollover must be a direct rollover and must be made to an individual retirement account or annuity describe in Code Section 408(a) or 408(b) ("IRA") that is established on behalf of the beneficiary and will be treated as an inherited IRA pursuant to Code Section 402(c)(ii). Also, in the case of a nonspouse beneficiary, the determination of any required minimum distribution under Code Section 401(a)(9) that is ineligible for rollover shall be made in accordance with IRS Notice 2007-7, Q&A 17 and 18.

4. Direct rollover: A direct rollover is a payment by the plan to the eligible retirement plan specified by the distributee. (Ord. BL2015-1007 § 4, 2015; Ord. 2002-1060 § 1 (part), 2002)

3.30.070 Qualified military service.

The following sentence shall apply as to affected members who are reemployed on or after December 12, 1994. Notwithstanding any provision of this plan to the

contrary, contributions, benefits and service credit with respect to qualified military service will be provided in accordance with Code Section 414(u). (Ord. 2002-1060 § 1 (part), 2002)

3.30.080 Family Medical Leave Act requirements.

Notwithstanding any other provisions of the plan, in the case of an eligible employee who takes family or medical leave as an eligible employee of a covered employer under the provisions of the Family and Medical Leave Act of 1993 (FMLA), any period of FMLA leave shall be treated as continued service for purposes of eligibility to participate and vesting service to the extent required by applicable law. (Ord. 2002-1060 § 1 (part), 2002)

3.30.090 Vesting upon plan termination.

In the event that this plan is terminated for any reason the accrued benefits of all members shall fully vest and become nonforfeitable. (Ord. 2002-1060 § 1 (part), 2002)

3.30.100 Plan forfeitures.

Any plan forfeitures occurring as a result of a member terminating employment with the Metropolitan Government of Nashville and Davidson County, Tennessee prior to completing five years of service shall not be used to increase benefits of remaining plan members. (Ord. 2002-1060 § 1 (part), 2002)

3.30.110 Definitions.

A. "Code" means the U.S. Internal Revenue Code as amended. All references to code sections shall include any applicable rulings and regulations, and as of any future date shall automatically incorporate any amendments to such sections, and shall be deemed to refer to any comparable provisions of any future laws.

B. "Plan" means the pensions for members with credited employee service and pensions for members with credited fire and police service as specified in the Metropolitan Code.

C. "Plan year" means each twelve month period commencing July 1 and ending on the next June 30.

D. "Spouse" means the person who is legally married to a member.

E. "Vesting service" means the service of a member as defined in Section 3.08.010 of the plan. (Ord. 2002-1060 § 1 (part), 2002)

3.30.120 Prohibition against diversion of trust funds.

The metropolitan government has no beneficial interest in the trust fund, and no part of the trust fund shall ever revert or be repaid to the metropolitan government, directly or indirectly, except:

A. Upon initial non-qualification pursuant to Chapter 3.30 hereof;

B. In the event that the metropolitan government contribution is made by mistake of fact, in which case the amount of such mistaken contribution shall be returned to the metropolitan government provided no more than one year has elapsed since the date of payment by the metropolitan government of the mistaken contribution; or,

C. In the event of termination of the plan with residual assets as described Section 3.08.210 or 3.08.220 hereof, if, and to the extent, permitted by the Internal Revenue Code and applicable regulations thereunder. (Ord. BL2015-1007 § 5, 2015; Ord. BL2003-35 § 1, 2003)

3.30.130 Reserved.

Editor's note—Ord. BL2015-100,7 § 6, passed February 24, 2015, repealed § 3.30.130, which pertained to applicable mortality table under Rev. Rul. 2001-62 and derived from Ord. BL2003-35 § 2, 2003.

Chapter 3.32

PENSIONS FOR MEMBERS WITH CREDITED EMPLOYEE SERVICE—DIVISION A

Sections:

3.32.010	**Eligibility for pension.**
3.32.020	**Normal retirement pension.**
3.32.030	**Early retirement pension.**
3.32.040	**Vested pension after required years of credited employee service.**

The provisions of this chapter shall apply only to those members who are covered under Division A of the system. (Added during 10-95 supplement)

3.32.010 Eligibility for pension.

A member of Division A who is not specifically excluded by the Metropolitan Charter from having a pension from the system and who has credited employee service shall be eligible following termination to receive an employee service pension in accordance with the provisions of this chapter, provided he makes written application for such pension in accordance with Section 3.08.160. No pension provided in accordance with this chapter shall be payable with respect to any month that a disability pension is payable. (Ord. 95-1452 § 50, 1995; prior code § 32-1-49)

3.32.020 Normal retirement pension.

A. The employee service pension of a retired member shall commence on the latter of the first day of the month following his attainment of age sixty-five or following his termination and be payable on the first day of the month thereafter during his lifetime, computed as of his date of termination as one-twelfth of the product of 1 and 2, as follows:

1. Credited employee service;

2. One percent of average base earnings, plus one and seventy-five one-hundredths percent of average excess earnings.

B. A member who is an eligible employee and who is accruing credited employee service may at his option continue his employment beyond the normal date of retirement. (Prior code § 32-1-50)

3.32.030 Early retirement pension.

A. An employee service pension of a retired member shall be payable if his termination occurs prior to his sixty-fifth birthday, but after his fifty-fifth birthday, provided he has then completed twenty years of service. Such pension shall be payable as either 1 or 2, as follows:

1. A monthly deferred early employee service pension, which shall commence on the first day of the month following his attainment of age sixty-five, provided he is then living, computed and payable in accordance with provisions of Section 3.32.020;

2. An immediate monthly early employee service pension which shall be payable on the first day of the month following his date of termination and on the first day of each month thereafter during his lifetime, the amount of which shall be determined to be the actuarial equivalent of the amount of pension provided in subdivision 1 of this subsection.

B. If a retired member who has elected a monthly deferred employee service pension, as provided in subsection (A)(1) of this section, is reemployed subsequently as a metropolitan employee, his service shall not be deemed to have been interrupted, but shall not include any time during which he was not an eligible employee.

C. Any disability pensioner granted a disability pension under Section 3.28.050(C), that otherwise meets the criteria of this section, may voluntarily elect to take an early retirement pension. This subsection, as added by Ordinance 97-1018, shall have a retroactive application date of January 1, 1997. (Ord. 97-1018 §§ 7, 10 (part), 1997; prior code § 32-1-51)

3.32.040 Vested pension after required years of credited employee service.

Any member who becomes a metropolitan employee on or after January 1, 2013 and whose termination occurs after he has completed at least ten years of service and before he is eligible to receive a benefit under either Section 3.32.020 or 3.32.030 shall be eligible to leave any employee contributions in the system and shall be eligible to receive a monthly deferred pension which shall commence on the first day of the month following his attainment of age sixty-five, provided he is then living, computed and payable in accordance with the provisions in Section 3.32.020.

Any member who was a metropolitan employee at any time from October 1, 2001 through December 31, 2012 and whose termination occurs after he has completed at least five years of service and before he is eligible to receive a benefit under either Section 3.32.020 or 3.32.030 shall be eligible to leave any employee contributions in the system and shall be eligible to receive a monthly deferred pension which shall commence on the first day of the month following his attainment of age sixty-five, provided he is then living, computed and payable in accordance with the provisions in Section 3.32.020.

Any member who was not a metropolitan employee on or after October 1, 2001 and whose termination occurs after he has completed at least ten years of service and before he is eligible to receive a benefit under either Section 3.32.020 or 3.32.030 shall be eligible to leave any employee contributions in the system and shall be eligible to receive a monthly deferred pension which shall commence on the first day of the month following his attainment of age sixty-five, provided he is then living, computed and payable in accordance with the provisions in Section 3.32.020. (Amdt. 1 to Ord. BL2012-237 § 1, 2012; Ord. BL2012-237 § 1, 2012; Ord. 2001-775 § 1, 2001; prior code § 32-1-52)

Chapter 3.33

PENSIONS FOR MEMBERS WITH CREDITED EMPLOYEE SERVICE—DIVISION B

Sections:

3.33.010	**Eligibility for pension.**
3.33.020	**Normal retirement pension.**
3.33.030	**Early retirement pension.**
3.33.040	**Vested pension after required years of credited employee service.**
3.33.050	**Unused sick leave at service retirement.**

The provisions of this chapter shall apply only to those members who are covered under Division B of the system. (Ord. 95-1452 § 51 (part), 1995)

3.33.010 Eligibility for pension.

A member of Division B who is not specifically excluded by the Metropolitan Charter from having a pension from the system, and who has credited employee service, shall be eligible following termination to receive an employee service pension in accordance with the provisions of this chapter, provided he makes written application for such pension in accordance with Section 3.08.160. No pension provided in accordance with this chapter shall be payable with respect to any month that a disability pension is payable. (Ord. 95-1452 § 51(a), 1995)

3.33.020 Normal retirement pension.

A. The employee service pension of a retired member shall commence on the later of the first day of the month following his unreduced retirement age, or following his termination, and be payable on the first day of the month thereafter during his lifetime, computed as of his date of termination as one-twelfth of the product of 1 and 2, as follows:

1. Credited employee service;

2. One and seventy-five one-hundredths percent of average earnings.

B. A member who is an eligible employee and who is accruing credited employee service may at his option continue his employment beyond the normal date of retirement. (Ord. 95-1452 § 51(b), 1995)

3.33.030 Early retirement pension.

A. An employee service pension of a retired member shall be payable if his termination occurs prior to his eligibility under 3.33.020 but after his fiftieth birthday and after his completion of ten years of credited employee service. Such pension shall be payable as either 1 or 2, as follows:

1. A monthly deferred early employee service pension, which shall commence on the first day of the month following his attainment of unreduced retirement age, provided he is then living, computed and payable in accordance with provisions of Section 3.33.020;

2. An immediate monthly early employee service pension which shall be payable on the first day of the month following his date of termination and on the first day of each month thereafter during his lifetime, the amount of which shall be determined as under Section 3.33.010, but reduced by four percent for each of the first five years by which retirement date precedes unreduced retirement age, and by eight percent for each additional year by which retirement date precedes unreduced retirement age; provided, however, that the immediate monthly benefit shall not be less than the actuarial equivalent of the amount of deferred pension provided in subdivision 1 of this section. (Ord. 95-1452 § 51(c), 1995)

3.33.040 Vested pension after required years of credited employee service.

Any member who becomes a metropolitan employee on or after January 1, 2013 and whose termination occurs after he has completed at least ten years of service and before he is eligible to receive a benefit under either Section 3.33.020 or 3.33.030 shall be eligible to leave any employee contributions in the system and shall be eligible to receive a monthly deferred pension which shall commence on the first day of the month following his attainment of unreduced retirement age, provided he is then living, computed and payable in accordance with the provisions in Section 3.33.020.

Any member who was a metropolitan employee at any time from October 1, 2001 through December 31, 2012 and whose termination occurs after he has completed at least five years of service and before he is eligible to receive a benefit under either Section 3.33.020 or 3.33.030 shall be eligible to leave any employee contributions in the system and shall be eligible to receive a monthly deferred pension which shall commence on the first day of the month following his attainment of unreduced retirement age, provided he is then living, computed and payable in accordance with the provisions in Section 3.33.020.

Any member who was not a metropolitan employee on or after October 1, 2001 and whose termination occurs after he has completed at least ten years of service and before he is eligible to receive a benefit under either Section 3.33.020 or 3.33.030 shall be eligible to leave any employee contributions in the system and shall be

eligible to receive a monthly deferred pension which shall commence on the first day of the month following his attainment of unreduced retirement age, provided he is then living, computed and payable in accordance with the provisions in Section 3.33.020. (Amdt. 1 to Ord. BL2012-237 § 2, 2012; Ord. BL2012-237 § 2, 2012; Ord. 2001-775 § 2, 2001; Ord. 95-1452 § 51(d), 1995)

3.33.050 Unused sick leave at service retirement.

Any member with unused sick leave time, at service retirement, shall receive one hundred percent credit, subject to an affirmative election at the time of retirement, and in accordance with the board's policies and procedures, as follows:

1. Pension eligibility credit; or
2. Service credit.

(Ord. 95-1452 § 51(e), 1995)

Chapter 3.36

PENSIONS FOR MEMBERS WITH FIRE AND POLICE CREDITED SERVICE—DIVISION A

Sections:

3.36.010	**Eligibility for pension.**
3.36.020	**Normal retirement pension.**
3.36.030	**Early retirement pension.**
3.36.040	**Vested pension after required years of credited employee service.**

The provisions of this chapter shall apply only to those members who are covered under Division A of the system. (Ord. 95-1452 § 52, 1995)

3.36.010 Eligibility for pension.

A member who is not specifically excluded by the Metropolitan Charter from having a pension from the system and who has credited fire and police service shall be eligible following termination to receive a pension in accordance with this chapter, provided he makes written application for such pension in accordance with Section 3.08.160. No pension provided in accordance with this chapter shall be payable with respect to any month that a disability pension is payable. (Ord. 92-159 § 21, 1992; prior code § 32-1-53)

3.36.020 Normal retirement pension.

A. The police and fire pension of a retired member shall commence on the latter of the first day of the month following his attainment of age fifty-five and following his termination and be payable on the first day of the month thereafter during his lifetime computed as one-twelfth of the sum of 1 and 2, as follows:

1. Two percent of average earnings for each year of credited fire and police service not in excess of twenty-five years; plus

2. One and seventy-five one-hundredths percent of average earnings for each year that his credited police and fire service exceeds twenty-five years; provided, however, that the amount of pension payable in each month after the retired member has reached age sixty-five and after he has commenced receiving social security benefits, whichever occurs first, shall be reduced by the computed amount of his monthly primary social security; provided further, that the amount of pension payable in any month shall not be less than one-twelfth of the product of a and b, as follows:

a. Credited police and fire service;

b. One percent of average base earnings, plus one and seventy-five one-hundredths percent of average excess earnings.

B. The computed amount of such primary social security shall be determined by the board in accordance with the method by which the primary insurance amount is determined in accordance with the social security law as such law existed on the date of termination; except, that the primary insurance amount shall be based on the amount of his average earnings on the date of termination; provided further, however, that if the retired member proves to the satisfaction of the board that the actual amount of his monthly primary social security, not reduced by reason of any earnings, is less than such computed amount, the board shall thereupon adjust upward his pension provided under this section or option elected, as the case may be, according to the actual rather than the computed amount of his primary social security. (Ord. BL2021-830 § 3, 2021; Ord. 88-514 § 2, 1988; prior code § 32-1-54)

3.36.030 Early retirement pension.

A. A police and fire pension of a retired member shall be payable if his termination occurs after age fifty-five, or prior to his fifty-fifth birthday, but after he has reached his fiftieth birthday, provided he has then completed twenty years of service. Such pension shall be payable as either 1 or 2, as follows:

1. A monthly deferred early police and fire pension, which shall commence on the first day of the month following his attainment of age sixty-two, provided he is then living, computed and payable in accordance with the provisions of Section 3.36.020;

2. An immediate monthly early retirement benefit, which shall be payable on the first day of the month following his date of termination and on the first day of each month thereafter during his lifetime, the amount of which shall be determined to be the actuarial equivalent of the amount of pension provided in subdivision 1 of this subsection.

B. If a member who has elected a monthly deferred police and fire pension, as provided in subsection (A)(1) of this section, is reemployed subsequently as a metropolitan employee, his service shall not be deemed to have been interrupted, but shall not include any time during which he was not an eligible employee.

C. Any disability pensioner granted a disability pension under Section 3.29.050(B), that otherwise meets the criteria of this section, may voluntarily elect to take an early retirement pension. (Ord. 97-1018 § 9, 1997; prior code § 32-1-55)

3.36.040 Vested pension after required years of credited employee service.

Any member who becomes a metropolitan employee on or after January 1, 2013 and whose termination occurs after he has completed at least ten years of service and before he is eligible to receive a benefit under either Section 3.36.020 or 3.36.030 shall be eligible to leave any employee contributions in the system and shall be eligible to receive a monthly deferred pension which shall commence on the first day of the month following his attainment of age sixty-two, provided he is then living, computed and payable in accordance with the provisions in Section 3.36.020.

Any member who was a metropolitan employee at any time from October 1, 2001 through December 31, 2012 and whose termination occurs after he has completed at least five years of service and before he is eligible to receive a benefit under either Section 3.36.020 or 3.36.030 shall be eligible to leave any employee contributions in the system and shall be eligible to receive a monthly deferred pension which shall commence on the first day of the month following his attainment of age sixty-two, provided he is then living, computed and payable in accordance with the provisions in Section 3.36.020.

Any member who was not a metropolitan employee on or after October 1, 2001 and whose termination occurs after he has completed at least ten years of service and before he is eligible to receive a benefit under either Section 3.36.020 or 3.36.030 shall be eligible to leave any employee contributions in the system and shall be eligible to receive a monthly deferred pension which shall commence on the first day of the month following his attainment of age sixty-two, provided he is then living, computed and payable in accordance with the provisions in Section 3.36.020. (Amdt. 1 to Ord. BL2012-237 § 3, 2012; Ord. BL2012-237 § 3, 2012; Ord. 2001-775 § 3, 2001; prior code § 32-1-56)

Chapter 3.37

PENSIONS FOR MEMBERS WITH FIRE AND POLICE CREDITED SERVICE—DIVISION B

Sections:

3.37.010	**Eligibility for pension.**
3.37.020	**Normal retirement pension.**
3.37.030	**Early retirement pension.**
3.37.040	**Vested pension after required years of credited employee service.**
3.37.050	**Unused sick leave at service retirement.**

The provisions of this chapter shall apply only to those members who are covered under Division B of the system. (Ord. 95-1452 § 53 (part), 1995)

3.37.010 Eligibility for pension.

A member of Division B, who is not specifically excluded by the Metropolitan Charter from having a pension from the system and who has credited fire and police service shall be eligible following termination to receive a pension in accordance with this chapter, provided he makes written application for such pension in accordance with Section 3.08.160. No pension provided in accordance with this chapter shall be payable with respect to any month that a disability pension is payable. (Ord. 95-1452 § 53(a), 1995)

3.37.020 Normal retirement pension.

A. The police and fire pension of a retired member shall commence on the later of the first day of the month following his attainment of unreduced retirement age and following his termination and be payable on the first day of the month thereafter during his lifetime computed as one-twelfth of the sum of 1 and 2 as follows:

1. Two percent of average earnings for each year of credited fire and police service not in excess of twenty-five years; plus

2. One and seventy-five one-hundredths percent of average earnings for each year that his credited police or fire service exceeds twenty-five years. (Ord. BL2021-830 § 4, 2021; Ord. 95-1452 § 53(b), 1995)

3.37.030 Early retirement pension.

A. A police and fire pension of a retired member shall be payable if his termination occurs after forty-five and after completing ten years of credited police and fire service. Such pension shall be payable as either 1 or 2, as follows:

1. A monthly deferred early police and fire pension, which shall commence on the first day of the month following his attainment of his unreduced retirement age, provided he is then living, computed and payable in accordance with the provisions of Section 3.37.020;

2. An immediate monthly early retirement benefit, which shall be payable on the first day of the month following his date of termination and on the first day of each month thereafter during his lifetime, the amount of which shall be as provided in subsection (A)(1) of this section, reduced by four percent for each of the first five years by which retirement precedes unreduced retirement age, and by eight percent for each additional year by which retirement precedes unreduced retirement age; provided, however, that the immediate monthly benefit shall not be less than the actuarial equivalent of the amount of deferred pension provided in subdivision 1 of this section. (Ord. 95-1452 § 53(c), 1995)

3.37.040 Vested pension after required years of credited employee service.

Any member who becomes a metropolitan employee on or after January 1, 2013 and whose termination occurs after he has completed at least ten years of service and before he is eligible to receive a benefit under either Section 3.37.020 or 3.37.030 shall be eligible to leave any employee contributions in the system and shall be eligible to receive a monthly deferred pension which shall commence on the first day of the month following his attainment of unreduced retirement age, provided he is then living, computed and payable in accordance with the provisions in Section 3.37.020.

Any member who was a metropolitan employee at any time from October 1, 2001 through December 31, 2012 and whose termination occurs after he has completed at least five years of service and before he is eligible to receive a benefit under either Section 3.37.020 or 3.37.030 shall be eligible to leave any employee contributions in the system and shall be eligible to receive a monthly deferred pension which shall commence on the first day of the month following his attainment of unreduced retirement age, provided he is then living, computed and payable in accordance with the provisions in Section 3.37.020.

Any member who was not a metropolitan employee on or after October 1, 2001 and whose termination occurs after he has completed at least ten years of service and before he is eligible to receive a benefit under either Section 3.37.020 or 3.37.030 shall be eligible to leave any employee contributions in the system and shall be eligible to receive a monthly deferred pension which shall commence on the first day of the month following his attainment of unreduced retirement age, provided he is then living, computed and payable in accordance with the provisions in Section

3.37.020. (Amdt. 1 to Ord. BL2012-237 § 4, 2012; Ord. BL2012-237 § 4, 2012; Ord. 2001-775 § 4, 2001; Ord. 95-1452 § 53(d), 1995)

3.37.050 Unused sick leave at service retirement.

Any member with unused sick leave time, at service retirement, shall receive one hundred percent credit, subject to an affirmative election at the time of retirement, and in accordance with the board's policies and procedures, as follows:

1. Pension eligibility credit; or
2. Service credit.

(Ord. 95-1452 § 53(e), 1995)

Chapter 3.40

MINIMUM BENEFITS, OPTIONS, AND DEATH BEFORE RETIREMENT

Sections:

3.40.010	**Pension contributions—Refund—Revocation of withdrawal—Repayment after reemployment.**
3.40.020	**Optional benefits—Conditions for payment.**
3.40.030	**Optional benefits—Defined.**
3.40.035	**Deferred Retirement Option Plan for members of Division A and B ("DROP").**
3.40.040	**Death before retirement benefits commence—Division A.**
3.40.041	**Death before retirement benefits commence—Division B.**
3.40.045	**Death before retirement benefits commence—Dependent child benefit.**
3.40.050	**Minimum service pension benefit.**

3.40.010 Pension contributions—Refund—Revocation of withdrawal—Repayment after reemployment.

A. If upon a member's termination no benefit is payable under any section of Chapter 3.32, 3.33, 3.36 or 3.37, or, if a benefit is payable under any section of Chapter 3.32, 3.33, 3.36 or 3.37, but payments have not commenced, a refund of a member's contributions may be elected by the member or beneficiary, as the case may be, in lieu of all benefits which may otherwise become payable, such refund to be reduced by the amount of any benefits which have been previously applied for and paid from the fund. The amount of any such refund if the date of such termination is prior to the member's attainment of age sixty, shall exclude his prior employee contributions to a former plan which shall be forfeited, but the amount of any refund if the date of such termination is after his attainment of age sixty shall include his prior employee contributions to a former plan in addition to his pension contributions credited to his individual account. Notwithstanding any provisions of the system to the contrary, in no case shall any refund be payable if any benefit payment or any option-al benefit under the system has commenced to be paid.

B. Any officer and/or employee who, between January 1, 1972, and December 5, 1972, elected to withdraw his pension contributions may revoke such election; provided, however, that such revocation must be in writing and delivered to the board within one month after the passage of Bill No. 73-588. The revocation must be accompanied by payment of the amount withdrawn as well as those amounts which would have been paid by the officer and/or employee had he remained in the pension plan, plus interest at the rate of six percent per annum on the total amount payable, to be computed from the date of payment of the contributions to the officer and/or employee.

C. If a member's service with Metro, or a predecessor government, terminates and the member is subsequently rehired, the member shall receive service credit for his prior period of service after being regularly employed continuously for one year. This subsection shall apply to all members who are metropolitan employees on or after October 1, 2001, regardless of the date of termination or rehire. Members who are not metropolitan employees on or after October 1, 2001 shall only receive prior service credit if application for such credit was properly made under prior ordinances.

A member who received a refund of his contributions upon his termination, and who otherwise meets the requirements of this section, shall repay such contributions to the system with interest at six percent per annum of such refund computed from the day of payment of such refund to the member. Upon repayment of refund and interest the member shall receive credit for service as provided in Section 3.08.010 for service prior to his termination, but not including the time he was not employed by the metropolitan government. If only a portion of the refunded amount is repaid by the member, the member shall only receive pro rata credit, for his prior service with the refunded amount, plus interest, being credited towards the oldest period of service.

Any provision to the contrary notwithstanding, any employee whose service was terminated and was subsequently rehired prior to September 1, 1996 shall be permitted to make application to the board and receive service credit for their prior period of service, provided such application is made to the board not later than December 31, 2001. (Ord. 2001-775 § 6; Ord. BL2000-561 § 1, 2000; Ord. 95-1452 §§ 54, 55, 1995; amended during 10/94 supplement; prior code § 32-1-57)

3.40.020 Optional benefits—Conditions for payment.

A. A member who is entitled to receive a pension in accordance with either Chapter 3.32, 3.33, 3.36 or 3.37 may elect at any time prior to approval of the application by the board to have an optional benefit payable as set forth in Section 3.40.030 in lieu of all benefits he may otherwise be entitled to receive. If a member applies for

a service pension without electing an optional benefit, the board office shall notify the spouse of the member that an option is available, the amount of the option, and request an acknowledgment from the spouse that an option is available but not being elected. Those persons that are on disability pensions as provided under Chapter 3.28 or 3.29 must make their election prior to the time that their service pension becomes effective. The optional benefit shall be paid in accordance with the terms of the optional benefit elected. A member may revoke his election of an optional benefit and may make a new election at any time prior to the approval of the application by the board; provided, that if he or his beneficiary dies prior to the commencement of benefits, his election of an optional benefit shall be null and void.

B. Election of any optional benefit shall be subject to the approval of the board and shall be made by the member in writing and in such manner and form as the board may prescribe. The beneficiary last designated by the member prior to the date he delivers written application for an optional benefit to the board shall be the beneficiary to receive any benefits payable after his death; provided, that the beneficiary to receive any optional benefit in accordance with either Option A or Option B described in Section 3.40.030 must be a living person and cannot be his estate. (Ord. 95-1452 §§ 56, 57, 1995; Ord. 92-159 §§ 23, 24, 1992; prior code § 32-1-58)

3.40.030 Optional benefits—Defined.

A. The amount of any optional benefit set forth in this section shall be based on option rates adopted from time to time by the retirement board, and shall be actuarially equivalent in value to the benefits that would otherwise be payable to a retired member if no option were to have been elected; provided, that an optional benefit in lieu of any pension which commences after an employee's sixty-fifth birthday shall not be less than is based on the option rate that would have been applicable had he retired at age sixty-five.

B. The optional benefits are as follows:

1. Option A—Joint and Survivor Option. An amount of optional benefit payable to the retired member for life, which shall continue after his death to his surviving beneficiary for life in the same amount as that payable to the retired member.

2. Option B—Modified Joint and Survivor Option. An amount of optional benefit payable to the retired member for life, which shall continue after his death to his surviving beneficiary for life in the amount of fifty percent of the amount that was payable to the retired member.

3. Option C—Social Security Option. An increased amount of optional benefit, payable to the retired member during his lifetime until an age between age sixty-two and age sixty-five, and a reduced optional benefit payable thereafter for life in order to have a more level retirement income when such reduced optional benefit is added to his primary social security. This optional benefit shall be based on a computed amount of primary social security, determined by the board in accordance with the Act as it exists on the date his optional benefit is to commence.

4. Option D—One Hundred Twenty Payments Certain and Life Option. An optional benefit payable for life with the first one hundred twenty payments guaranteed. Any guaranteed payments due after the death of the retired member shall be payable to his beneficiary.

5. Option E—A Joint and Survivor Option with a Pop-Up Feature. An amount of optional benefit payable to the retired member for life, which shall continue after the retired member's death to his surviving beneficiary for life in the same amount payable to the retired member; provided, however, that if the surviving beneficiary for life predeceases the retired member, the amount of the benefit paid to the retired member shall be adjusted to the retired member's normal retirement benefit.

6. Option F—Modified Joint and Survivor Option with a Pop-Up Feature. An amount of optional benefit payable to the retired member for life, which shall continue after his death to his surviving beneficiary for life in the amount of fifty percent of the amount that was payable to the retired member; provided, however, that if the surviving beneficiary for life predeceases the retired member, the amount of the benefit paid to the retired member shall be adjusted to the retired member's normal retirement benefit.

C. Under any option elected which provides for payments after the death of a retired member to a beneficiary, except under Options A and B if the retired member's spouse is the beneficiary, the actuarial present value of payments to the retired member must be more than fifty percent of the actuarial present value of payments to the retired member and the beneficiary. (Ord. 92-159 § 25, 1992; prior code § 32-1-59)

3.40.035 Deferred Retirement Option Plan for members of Division A and B ("DROP").

A. Eligible members shall be entitled to elect a deferred retirement option plan ("DROP") as an additional optional benefit. Members electing a DROP benefit shall be entitled to receive a lump sum payment equal

to the monthly benefit amount the member would be eligible to receive at retirement (calculated prior to any actuarial reductions for other retirement options elected) multiplied by the number of months in the DROP period elected. Members may elect a one, two or three year DROP period. A member electing a DROP benefit shall then have his monthly periodic pension benefit determined by reducing the pension benefit that would otherwise be payable by an annuity that is the actuarial equivalent of the DROP lump sum elected. The monthly periodic pension payments (after actuarial equivalent reduction) shall be payable as pension benefits are otherwise payable under the system, including optional benefit elections pursuant to Sections 3.40.020 and 3.40.030 of this chapter.

B. Only a member of Division A or B that is eligible for normal retirement under Sections 3.32.020, 3.33.020, 3.36.020 and 3.37.020 and has accumulated twenty-five or more years of combined credited employee service and/or credited fire and police service shall be eligible to participate in the DROP. Early retirees and employees who terminate with a vested benefit prior to eligibility to immediately receive a normal retirement benefit shall not be eligible to make a DROP election. DROP elections shall be made for whole year periods only and may not be made for a period that exceeds three years. The election shall be made at the time of retirement and prior to commencement of benefits.

C. A DROP election shall not be available to a member whose termination of service occurs because of disability.

D. A DROP election shall not be available to the beneficiary of a member who has separated from service as a result of death.

E. A DROP election shall not be available to any former employee who has commenced receiving benefits from the plan prior to the effective date of the ordinance codified in this section.

F. The DROP payment elected shall be paid as soon as practicable after the retirement of the member. Election of a DROP payment shall be subject to the approval of the board and shall be made by the member in writing and in such manner and form as the board may prescribe.

G. Actuarial equivalence for the purpose of determining a member's annuity reduction resulting from a DROP election shall be based upon the age of the member, the DROP lump sum payment amount elected, and the actuarial assumptions that are in use for this purpose by the plan at the time of the DROP election. The actuarial assumptions to be used on the effective date of this section shall be based on recommendations of the first plan experience study conducted after June 30, 1997 without regard to actual adoption by the board.

Actuarial assumptions used in the preceding section for the purpose of determining actuarial equivalence between lump sum payments and related annuity reductions may be changed periodically to ensure currency. Assumptions include mortality tables; interest rates and future cost of living increase rates. The actuarial assumptions will be based on recommendations from the most recent actuarial experience study conducted for the plan without regard to actual adoption by the board. Revised assumptions used in periods subsequent to the implementation of the initial assumptions used on the effective date will be effective as of the first July 1 date following the later of (1) the ending date of the period examined in the most recent experience study, or (2) the date the most recent experience study is formally presented to the board.

Actuarial assumptions may differ for Divisions A and B due to differences in future expectations.

Provided however that the interest rate used for the purpose of determining actuarial equivalence between lump sum payments and related annuity reductions will be no less than interest rate specified by Internal Revenue Code Section 417(e)(3)(A)(ii)(II) for the measurement date that is four months prior to the first day of the plan year in which the benefit commencement date occurs.

H. Payments made to a member as a result of a DROP election shall be treated as a refund of member contributions for purposes of determining benefits payable to a beneficiary as a result of the death of the member.

I. Any other provisions of this title notwithstanding, no member shall acquire a vested right to a DROP benefit until such member's application for a DROP benefit is approved by the board. DROP benefits may be discontinued or modified as to any member until such member's application is approved by the board.

J. A member may not elect a DROP payment period that results in a lump sum payment that exceeds the actuarially equivalent value of the member's retirement benefit.

K. No member shall be permitted to apply for or receive a DROP benefit until and unless the employee benefit board adopts a resolution certifying that the necessary infrastructure and resources are in place to adequately administer the DROP benefit. (Ord. 2002-1234 § 1 (part), 2002)

3.40.040 Death before retirement benefits commence—Division A.

The provisions of this section shall apply only to those members who are covered under Division A of the system.

If the death of a member occurs while he is an eligible employee and after becoming eligible to retire and receive a benefit in accordance with Sections 3.32.020 through 3.32.040 or 3.36.020 through 3.36.040, or if the death of a member occurs after his termination but before any benefit under either Sections 3.32.020 through 3.32.040 or 3.36.020 through 3.36.040 has commenced to be paid, his surviving spouse shall be eligible to receive a benefit determined in accordance with the applicable option the member had elected prior to his termination, but if no option had been so elected, the benefit shall be determined in accordance with Option A as though the member had retired in the month prior to the month of his death and had elected Option A. (Ord. 95-1452 § 58, 1995; prior code § 32-1-60)

3.40.041 Death before retirement benefits commence—Division B.

The provisions of this section shall apply only to those members who are covered under Division B of the system.

If the death of a member occurs while he is an eligible employee and after becoming eligible to retire and receive a benefit in accordance with Sections 3.33.020 through 3.33.040 or 3.37.020 through 3.37.040, or if the death of a member occurs after his termination but before any benefit under either Sections 3.33.020 through 3.33.040 or 3.37.020 through 3.37.040 has commenced to be paid, his surviving spouse shall be eligible to receive a benefit determined in accordance with the applicable option the member had elected prior to his termination, but if no option had been so elected, the benefit shall be determined in accordance with Option A as though the member had retired in the month prior to the month of his death and had elected Option A.

In no case, however, will an eligible employee's death benefit be less than twenty-five percent of his average earnings over the last twelve months preceding his death or Option A — whichever is greater. (Ord. 95-1452 § 59, 1995)

3.40.045 Death before retirement benefits commence—Dependent child benefit.

If a member who is vested in the pension system dies leaving no surviving spouse and no benefit is payable under any other provision of this code and the member is survived by one or more dependent children, a benefit under this section shall be payable for the benefit of the member's dependent child or children. Any benefit due under this section shall be distributed per capita among the surviving dependent children so that each shall share equally in the benefits so long as he remains a dependent child.

The amount of the benefit due under this section shall be the amount a surviving spouse the same age as the member would have received, determined in accordance with Option A, as though the member had retired in the month prior to the month of his death or twenty-five percent of the member's average earnings over the last twelve months preceding his death - whichever is greater. (Ord. 2001-775 § 7, 2001)

3.40.050 Minimum service pension benefit.

A. The minimum service pension benefit amount shall be applicable to those persons receiving a benefit, as set out below, as of September 1, 2005, or entitled to receive a benefit on or after September 1, 2005, but in either event only to those persons who have completed at least five years of credited service.

B. The minimum service pension benefit shall apply only to calculations made under Sections 3.32.020, 3.32.030, 3.33.020, 3.33.030, 3.36.020, 3.36.030, 3.37.020 or 3.37.030. If the amount of a benefit provided under any section other than Section 3.32.020, 3.33.020, 3.36.020 or 3.37.020 is arrived at by first calculating a normal retirement benefit under Section 3.32.020, 3.33.020, 3.36.020 or 3.37.020, the calculation under Section 3.32.020, 3.33.020, 3.36.020 or 3.37.020 shall take the minimum service pension benefit into account, but the amount of the benefit payable under such other section shall not otherwise be affected by the existence of the minimum service pension benefit. If the amount of a benefit is calculated without reference to the amount of the normal retirement benefit payable under Section 3.32.020, 3.33.020, 3.36.020 or 3.37.020, then the amount of such benefit shall not be affected by the existence of the minimum service pension benefit.

C. The minimum service pension benefit shall be based upon the years of credited employee service under the system and shall be as set out below:

1. For those persons with less than five years of service there is no minimum service pension benefit.

2. For those persons with five years of service but less than six years of credited employee service, the minimum service pension benefit shall be seventy-five dollars.

3. For those persons with six years of service but less than seven years of credited employee service, the minimum service pension benefit shall be ninety dollars.

4. For those persons with seven years of service but less than eight years of credited employee service, the minimum service pension benefit shall be one hundred five dollars.

5. For those persons with eight years of service but less than nine years of credited employee service, the minimum service pension benefit shall be one hundred twenty dollars.

6. For those persons with nine years of service but less than ten years of credited employee service, the minimum service pension benefit shall be one hundred thirty-five dollars.

7. For those persons with ten years of service but less than eleven years of credited employee service, the minimum service pension benefit shall be one hundred fifty dollars.

8. For those persons with eleven years of service but less than twelve years of credited employee service, the minimum service pension benefit shall be one hundred sixty-five dollars.

9. For those persons with twelve years of service but less than thirteen years of credited employee service, the minimum service pension benefit shall be one hundred eighty dollars.

10. For those persons with thirteen years of service but less than fourteen years of credited employee service, the minimum service pension benefit shall be one hundred ninety-five dollars.

11. For those persons with fourteen years of service but less than fifteen years of credited employee service, the minimum service pension benefit shall be two hundred ten dollars.

12. For those persons with fifteen years of service but less than sixteen years of credited employee service, the minimum service pension benefit shall be two hundred twenty-five dollars.

13. For those persons with sixteen years of service but less than seventeen years of credited employee service, the minimum service pension benefit shall be two hundred forty dollars.

14. For those persons with seventeen years of service but less than eighteen years of credited employee service, the minimum service pension benefit shall be two hundred fifty-five dollars.

15. For those persons with eighteen years of service but less than nineteen years of credited employee service, the minimum service pension benefit shall be two hundred seventy dollars.

16. For those persons with nineteen years of service but less than twenty years of credited employee service, the minimum service pension benefit shall be two hundred eighty-five dollars.

17. For those persons with twenty years or more of credited employee service, the minimum service pension benefit shall be three hundred dollars.

D. Notwithstanding the foregoing provisions of this section to the contrary, the minimum service pension benefit shall also be applicable to calculations made under Sections 3.40.041 and 3.40.045 for those persons vested in the pension system whose death occurs prior to such person receiving benefits under Chapters 3.32, 3.33, 3.36 or 3.37. The minimum service pension benefit for calculations made under Sections 3.40.041 and 3.40.045 shall be based upon the years of credited employee service under the system and shall be as set out below:

1. For those persons with less than five years of service there is no minimum service pension benefit.

2. For those persons with five years of service but less than six years of credited employee service, the minimum service pension benefit shall be seventy-five dollars.

3. For those persons with six years of service but less than seven years of credited employee service, the minimum service pension benefit shall be ninety dollars.

4. For those persons with seven years of service but less than eight years of credited employee service, the minimum service pension benefit shall be one hundred five dollars.

5. For those persons with eight years of service but less than nine years of credited employee service, the minimum service pension benefit shall be one hundred twenty dollars.

6. For those persons with nine years of service but less than ten years of credited employee service, the minimum service pension benefit shall be one hundred thirty-five dollars.

7. For those persons with ten years or more of credited employee service, the minimum service pension benefit shall be one hundred fifty dollars.

E. Any person entitled to a benefit under Sections 3.32.020, 3.32.030, 3.33.020, 3.33.030, 3.36.020, 3.36.030, 3.37.020, or 3.37.030 of this system, who is otherwise covered by this minimum service pension benefit provision, whose current benefit has been increased by the provision of Section 3.08.170 or 3.08.171 shall not be entitled to any increase in their pension benefit if the application of Sections 3.08.170 or 3.08.171 has raised their benefit in excess of the applicable amount set out in subsection C of this section, adjusted (if the benefit is other than a normal retirement benefit) as described in the second sentence of subsection B of this section. If the amount currently received is less than the applicable minimum benefit as set out in subsection C of this section (so adjusted), the current benefit shall be increased only by the difference in the current benefit amount and the

benefit provided for in subsection C (so adjusted). After January 1, 1993, all increases under Sections 3.08.170 or 3.08.171 shall be based upon the applicable minimum service pension benefit amount provided for herein. (Ord. BL2008-298 §§ 1—3, 2008; Ord. 95-1452 §§ 60, 61, 1995; Ord. 94-965 §§ 1 and 2, 1994; §§ 1 and 2 of Amdt. 2 to Ord. 93-624, 4/20/93; Amdt. to Ord. 93-624, 4/20/93; Ord. 93-624 § 1, 1993)

Chapter 3.44

LIFE INSURANCE AND MEDICAL CARE FOR NONMEMBERS

Sections:

3.44.010	**Nonmember defined.**
3.44.020	**Extending benefits to nonmembers.**
3.44.030	**Enrollment of nonmembers—When required.**
3.44.040	**Payment of premiums.**
3.44.050	**Refund of premiums.**
3.44.060	**Continuous coverage required—Nonmember restrictions.**
3.44.070	**Employment benefit rights for CETA employees.**

3.44.010 Nonmember defined.

A "nonmember," for the purposes of this chapter, shall include:

A. An elected official of the metropolitan government who is not a metropolitan employee, as defined in Section 3.08.010;

B. Each person who was an eligible employee on the effective date, who was covered prior to that date for medical care benefits under a group type of contract which was terminated through action other than his own, and who elects not to become a member of the system;

C. Each person, on the effective date, who was retired and who was receiving a benefit from a former plan and who had been covered for medical benefits immediately prior to that date under a group type of contract which was terminated through action other than his own. (Prior code § 32-1-61)

3.44.020 Extending benefits to nonmembers.

The contracts which provide medical care benefits and life insurance benefits for members in accordance with Chapter 3.24 and Sections 3.28.010 through 3.28.080 shall make such benefits available, subject to this chapter, to a nonmember, for himself and his dependents. (Prior code § 32-1-62)

3.44.030 Enrollment of nonmembers—When required.

A nonmember shall have until seventy-five days following the effective date to enroll for medical care or life insurance benefits or both in accordance with this chapter, in which case his medical care coverage shall commence on the effective date and his life insurance shall commence on the date he enrolls. A nonmember who does not so enroll for such medical care or life insurance benefits or both on or before seventy-five days following the effective date shall not be eligible thereafter to enroll for benefits pursuant to this chapter; except, that an elected official who is not a metropolitan employee shall be eligible to be covered, from the date he takes office, for benefits provided in this chapter, provided he enrolls within thirty days of the date he takes office; otherwise, he shall not be eligible to enroll for benefits pursuant to this chapter. (Prior code § 32-1-63)

3.44.040 Payment of premiums.

A. A nonmember shall pay for his coverage at the full premium rates of the life insurance contract or medical care contract or both, as the case may be, payable by payroll deductions from the date that coverage commences; provided, that if some of a nonmember's medical care or life insurance premiums had been shared by either the former county or city governments, the extent of sharing shall be continued.

B. Notwithstanding the provisions of subsection A of this section, as of March 1, 1966, and thereafter during his employment by the metropolitan government, each nonmember, as defined by subsection B of Section 3.44.010, who has enrolled for medical care and/or life insurance benefits in accordance with this chapter shall be entitled to the same rights to contribute to the payment for medical care and life insurance benefits as members have, and shall be entitled to have the metropolitan government contribute to the payment for his medical care or life insurance benefits or both to the same extent that the metropolitan government contributes to the medical care and life insurance benefits of members. (Prior code § 32-1-64)

3.44.050 Refund of premiums.

In the event any nonmember may subsequently elect to become a member in accordance with Chapter 3.12, he will be eligible for a refund of one-half of all full premiums paid during the time he was covered for medical care benefits and life insurance benefits as a nonmember. (Prior code § 32-1-65)

3.44.060 Continuous coverage required—Nonmember restrictions.

A. The contracts shall provide that no gap in coverage shall exist in respect of any metropolitan employee, member or nonmember, or retired person referred to in this chapter or of any of his dependents previously covered by any type of group insurance program referred to in this chapter and who enrolls for coverage in accordance with this chapter.

B. No person who enrolls for coverage pursuant to this chapter shall be or be deemed to be member of the system. (Prior code § 32-1-66)

3.44.070 Employment benefit rights for CETA employees.

A. 1. Eligible employees of the Comprehensive Employment Training Act (CETA) program shall be eligible to participate in the life insurance and medical care benefits on the same basis as nonmembers, as provided in Sections 3.44.010 through 3.44.060; provided, that any contributions to these coverages that are to be paid by the metropolitan government are paid by federal funds from the CETA program. Eligible employees under the CETA program shall pay the same contribution rate as if they were employees of the metropolitan government.

2. Should the CETA program be revised or phased out, the metropolitan government shall have no obligation to continue the program or to make contributions to the pension and/or life and health insurance plans for CETA employees.

B. Employees of the CETA program shall not become a part of the pension system of the metropolitan government while they are employees under the CETA program.

C. CETA employees shall, when they would have otherwise been able to participate in the metropolitan government pension system, be permitted to authorize the deduction from their salaries of an amount of money equal to the employee contribution rate they would otherwise have paid. This money shall be held in a separate reserve account. If the CETA employee is transferred to a budgeted position from the CETA program within ninety days after the termination of the period of CETA participation, the contributions of the employee shall be transferred to the appropriate pension trust fund.

D. If a CETA employee is transferred to a budgeted position within ninety days after the termination of the period of CETA participation, in addition to the employee's contribution as provided in subsection C of this section, there shall be paid into the appropriate trust fund an amount equal to the contribution rate that would have otherwise been paid by the metropolitan government as the employer's contribution rate. The amount shall be paid from the federal funds allocated to the CETA program.

E. Upon being transferred to a budgeted position and the payment of the contribution, as set out in subsections C and D of this section, the employee shall be credited with service, for pension purposes, as if covered under the plan as a metropolitan government employee.

F. If a CETA employee is terminated or resigns, and not transferred to a budgeted position within ninety days after the termination of the period of CETA participation, upon the termination the employee shall be refunded all amounts withheld under subsection C of this section.

G. This section shall not vest any rights to a CETA employee, in the pension plan, while still a CETA employee. Only upon transferring to a budgeted position shall a CETA employee be eligible for service or disability pension rights, and then only to the extent as other metropolitan government employees.

H. Those CETA employees who are enrolled in public service employment in work experience programs as of June 30, 1979, and who are enrolled in the metropolitan government pension system as of that date, shall be permitted to remain in the metropolitan government pension system, and CETA funds may be used for contributions on their behalf for the duration of their CETA participation. (Prior code § 32-1-66.1)

Chapter 3.48

SOCIAL SECURITY

Sections:

3.48.010 **Policy and purpose—Statutory authority.**

3.48.020 **Execution of agreements—Employees and officials—Authority.**

3.48.030 **Execution of agreements—Board of education employees—Authority.**

3.48.040 **Payroll withholdings—Generally.**

3.48.050 **Payroll withholdings—Transfer from prior systems.**

3.48.060 **Payroll withholdings—Payment to state and federal agencies.**

3.48.070 **Records and reports.**

3.48.080 **Persons exempted from benefits.**

3.48.010 Policy and purpose—Statutory authority.

It is declared to be the policy and purpose of the metropolitan government to extend, as of April 1, 1963, to the employees and officials thereof not excluded by law or this chapter, the benefits of the system of Federal Old Age and Survivors' Insurance, as provided by the Federal Social Security Act and amendments thereto, and authorized by Chapter 38, Title 8, Tennessee Code Annotated (T.C.A. § 8-38-101 et seq.). In pursuance of such policy and for that purpose, the metropolitan government shall take such action as may be required by applicable federal or state laws or regulations. (Prior code § 32-1-67)

3.48.020 Execution of agreements—Employees and officials—Authority.

The mayor is authorized and directed to execute all necessary agreements and amendments thereto with the director of Old Age and Survivors' Insurance Agency, State of Tennessee, as agent or agency, to secure coverage of employees and officials as provided in this chapter. (Prior code § 32-1-68)

3.48.030 Execution of agreements—Board of education employees—Authority.

The chairman of the metropolitan board of education is authorized and directed to execute amendments to the social security agreement mentioned in Section 3.48.020, to provide coverage in such federal system for employees rendering services in positions covered either by the metropolitan board of education teacher retirement plan or by the metropolitan board of education supplemental teacher retirement plan, as of a date or dates authorized by such board in a formal request filed with the Old Age and Survivors' Insurance Agency, State of Tennessee. (Prior code § 32-1-74)

3.48.040 Payroll withholdings—Generally.

Withholding from salaries or wages of employees and officials, for the purpose provided in Section 3.48.010, is authorized to be made in the amounts and at such times as may be required by applicable federal or state laws or regulations, and shall be paid over to the state or federal agency designated by such laws or regulations. (Prior code § 32-1-69)

3.48.050 Payroll withholdings—Transfer from prior systems.

Acting under Section 20.03 of the Metropolitan Charter, withholdings from salaries or wages of employees and officials who were, prior to April 1, 1963, employees or officials of Davidson County, the City of Nashville and the City of Nashville parking board (contracting agencies), who were covered by the benefits of the system of Federal Old Age and Survivors' Insurance under agreements between the aforementioned contracting agencies and the state to meet any obligations under such agreement that may materialize or be disclosed on and after April 1, 1963, with respect to such employees and officials, are authorized, and such shall be withholdings paid over to the state or federal agency designated by applicable laws or regulations. (Prior code § 32-1-70)

3.48.060 Payroll withholdings—Payment to state and federal agencies.

A. There shall be appropriated from available funds such amounts at such times as may be required by applicable state or federal laws or regulations for employer's contributions, which shall be paid over to the state or federal agency designated by such laws or regulations.

B. There shall be appropriated from available funds such amounts at such times as may be required by applicable federal or state laws or regulations to pay the employer's share of contributions in connection with withholdings as provided in Section 3.08.150. Further, this appropriation shall include funds from which the social security contributions due and as incurred with respect to services of individuals under the agreements with the contracting agencies named in Section 3.48.050 which were not paid by such agencies, and which shall be paid over to the state or federal agency designated by

applicable laws or regulations. (Prior code § 32-1-71)

3.48.070 Records and reports.

The metropolitan government shall keep records and make such reports as may be required by applicable state or federal laws or regulations. (Prior code § 32-1-72)

3.48.080 Persons exempted from benefits.

A. Except members of the Class A division of the Davidson County pension system, there is excluded from this chapter any authority to make any agreement with respect to employees or officials who are members of and rendering services in positions covered by any retirement system created for or by the former City of Nashville or Davidson County, or any employee or official rendering services in positions covered by the Nashville firemen and policemen retirement system who are not eligible for membership therein, or any employee or official rendering services in positions covered by a retirement system created for or by any entity of the former City of Nashville or Davidson County, or any federal or state retirement system, or any employee or official not authorized to be covered under applicable federal or state laws or regulations, any elective or appointed official or employee of the electric power board of the metropolitan government, or, with respect to the absolute coverage group authorized in subsection B of this section, any employee or official rendering services in part-time positions, elective officials engaged in rendering legislative services and any employee or official rendering services in positions the compensation for which is on a fee basis.

B. It is the legislative intent of this chapter, except as excluded in subsection A of this section, to authorize the extension of the benefits of the system of Federal Old Age and Survivors' Insurance, effective April 1, 1963, to include, as an absolute coverage group (1) all employees and officials rendering services in positions not covered by a retirement system and all employees and officials rendering services in positions covered by any retirement system created for or by Davidson County and the former City of Nashville, but in which such employees and officials are not eligible for membership, and as retirement system group, (2) effective April 1, 1963, employees rendering services in positions and members of or eligible for membership in the Class A division of the Davidson County pension system, (3) effective January 1, 1965, employees and officials in positions covered by the metropolitan employee benefit system. Election officials and election workers earning less than one thousand dollars in a calendar year for such services are also excluded from this chapter for wages paid during a calendar year between January 1, 1995, and December 31, 1999, and thereafter for each calendar year in which the remuneration paid for such services is less than the adjusted amount to be determined under Section 218(c)(8)(B) of the Social Security Act for any calendar year commencing on or after January 1, 2000.

C. The term "part-time position," as used in this section, means and is defined as a position in which the normal time requirements for the position on a full-time basis are not met, and in which services performed by an employee do not normally exceed two hundred hours per calendar year. (Ord. 95-1448 § 1, 1995; prior code § 32-1-73)

Chapter 3.52

EMPLOYEE CLASSIFICATION AND COMPENSATION*

Sections:

3.52.010	**Pay plan worksheets—Submitted when—Information requirements.**
3.52.020	**Elected official compensation assessments required.**

3.52.010 Pay plan worksheets—Submitted when—Information requirements.

The worksheets of each pay plan of the metropolitan government shall be submitted to the metropolitan council for its study and consideration at least fifteen days prior to the time that the pay plan shall be acted upon and such worksheets shall, at a minimum, summarize the changes being made to the pay plan and describe implementation and proposed effective dates. Additional information requested by council members or staff shall be provided as soon as practical prior to the time that the pay plan shall be acted upon. (Ord. BL2015-1065 § 1, 2015; prior code § 32-1-75)

3.52.020 Elected official compensation assessments required.

At least once per four year council term, the metropolitan department of human resources shall conduct an elected official compensation assessment and shall recommend to the civil service commission the appropriate level of compensation for councilmembers, the vice mayor, and the mayor, which shall be included as part of the general pay plan for metropolitan government employees. Such assessment shall include, but not be limited to, the following:

1. An examination of the salaries of councilmembers, vice mayor, and mayor, or the equivalents thereof, in cities that are comparable in size to the metropolitan government.

2. Recommendations regarding whether and to what extent the salaries of the elected officials should be modified starting with the next council term, taking into account:

a. The duties of the job;

b. The comparative relationship with the salaries of similar classifications in comparable cities;

c. The size of the local legislative bodies in comparable cities; and

d. Whether the elected officials in comparable cities serve on a part-time or full-time basis. (Ord. BL2021-675 § 1, 2021)

***Editor's note—**Ordinances and resolutions establishing and amending classification and pay plans for employees of the metropolitan government and boards, commissions and agencies thereof are not set out in this code. They are on file in the office of the metropolitan clerk and in the personnel department.

Chapter 3.56

LABOR POLICY

Sections:

3.56.010 **Right of employees to organize—Collective bargaining.**

3.56.020 **Exclusive representatives—Determining status.**

3.56.030 **Exclusive representatives—Powers and duties—Term of recognition.**

3.56.040 **Government directed to meet with employees—Response to bargaining petition.**

3.56.050 **Agreements requiring funding to be submitted to council.**

3.56.060 **Payroll deductions for dues.**

3.56.070 **Right to strike not granted by chapter.**

3.56.080 **Employees relations board—Established—Membership—Duties.**

3.56.090 **Employees relations board—Mediation issues—Submittal and procedure.**

3.56.010 Right of employees to organize—Collective bargaining.

Employees of metropolitan government shall have, and be protected in the exercise of, the right, freely and without fear of penalty or reprisal, to form, join and assist any employee organization, or to refrain from belonging, and to bargain collectively through representatives of their own choosing on questions of wages, hours, retirement benefits and all other terms and conditions of employment for the purpose of representation free from actual interference, restraint or coercion. (Prior code § 32-1-76)

3.56.020 Exclusive representatives—Determining status.

The director of personnel shall be responsible for determining exclusive representation status and shall establish an appropriate method to effect such recognition. He shall act upon any written petition for recognition as the exclusive representative within fifteen days after receiving such written petition. (Prior code § 32-1-77)

3.56.030 Exclusive representatives—Powers and duties—Term of recognition.

When an employee organization has been designated by the director of personnel as the exclusive representative of the employees in an appropriate unit, it shall have the right to act for, negotiate a written memorandum of understanding, and bargain collectively for all employees in the unit, and such right shall remain in full force and effect for one calendar year from the effective date hereof; provided, however, that recognition as the exclusive representative may be extended for any agreed upon period beyond the termination date up to a maximum of three years as approved by the appropriate board or the civil service commission and the metropolitan mayor. (Prior code § 32-1-78)

3.56.040 Government directed to meet with employees—Response to bargaining petition.

All boards, commissions and branches of the metropolitan government, are directed to engage in meaningful meetings with their employees or their exclusive representative, on matters within their jurisdiction, and such boards, commissions and branches of government shall answer, in writing, any written bargaining petition within thirty days after receiving such bargaining petition. (Prior code § 32-1-79)

3.56.050 Agreements requiring funding to be submitted to council.

Any portion of the memorandum of understanding agreed upon that requires funding in order to implement the agreement shall be submitted to the metropolitan council by the metropolitan mayor for its consideration. (Prior code § 32-1-80)

3.56.060 Payroll deductions for dues.

Upon the written authorization of any employee within a bargaining unit, on forms provided by the exclusive representative, the metro payroll department shall deduct from the payroll of the employee the monthly amount of dues as certified by the exclusive representative, and shall deliver the same to the designated official of the exclusive representative organization. Such authorization may be revoked or modified on the first of January and July of each year. (Prior code § 32-1-81)

3.56.070 Right to strike not granted by chapter.

Nothing contained in this chapter shall constitute a grant of the right to strike to any employee of the metropolitan government. (Prior code § 32-1-82)

3.56.080 Employees relations board—Established—Membership—Duties.

A. There is established a metropolitan employees relations board consisting of three members whose duties and jurisdiction shall be to engage in mediation and fact-finding on all disputes and unresolved issues that require approval of the metropolitan council, or as provided for in this chapter.

B. Composition of the board and selection of board members shall be in the following manner:

1. One member shall be selected by the exclusive representative;

2. One member shall be selected by the metropolitan mayor; and

3. One member shall be selected by the metropolitan vice-mayor. (Prior code 32-1-83)

3.56.090 Employees relations board—Mediation issues—Submittal and procedure.

If, within a reasonable time after receiving a bargaining petition, the exclusive representative and the appropriate branch of metropolitan government are unable to reach an agreement on any issue, such issue shall be submitted to mediation and fact-finding; except, that unresolved issues affecting the operational budget of the government must be submitted to mediation and fact-finding at least sixty days prior to the last day for approval of the fiscal budget in the following manner:

A. The exclusive representative will serve notice in writing on the metropolitan mayor that an impasse exists and request mediation and fact-finding to be instituted. The exclusive representative will advise the metropolitan mayor of the union's selection of a person outside of the union to engage in mediation and fact-finding in the union's behalf.

B. The metropolitan mayor will advise the union of his selection of a person outside of metropolitan government to engage in mediation and fact-finding in metropolitan government's behalf.

C. These two persons so selected shall, within five days therefrom, request the metropolitan vice-mayor to select the third member from the metropolitan council and such councilman shall be the chairman of the metropolitan employees relations board. The three persons so selected shall immediately schedule meetings for the purpose of mediating the dispute and engage in mediation and fact-finding that will be concluded within twenty days therefrom. Their success in mediating the dispute, along with a recommendation for resolution of such dispute and the board's findings, shall be submitted to the appropriate board, commission or metropolitan official for consideration and action at the next regular meeting after receiving such report. If the parties have not resolved the impasse by the last date for approval of the fiscal budget, the appropriate board, commission or the metropolitan mayor shall submit to the metropolitan council a copy of the findings and recommendations of the board together with its recommendations for settling the dispute. The exclusive representative may submit to the metropolitan council its recommendations for settling the dispute. The metropolitan council, through its appropriate committee, shall forthwith conduct a hearing and allow all parties involved to explain their positions, and thereafter the metropolitan council shall take such action as it deems appropriate and fitting. Copies of the board's findings, recommendations and report shall be given to all represented parties and all news media. (Prior code § 32-1-84)

Chapter 3.60

EMPLOYEE AWARD PROGRAMS

Sections:

Article I. Employee Suggestion Awards

3.60.010 Suggestion award program—Established.

3.60.020 Suggestion award board—Established.

3.60.030 Suggestion award board—Powers and duties.

3.60.040 Maximum cash awards—Appropriation item charged.

3.60.050 Positions excluded from receiving suggestion awards.

Article II. Award Program for Recovered Funds

3.60.060 Award program—Established.

3.60.070 Award board—Established—Powers and duties.

3.60.080 Type of award.

3.60.090 Positions excluded from receiving awards.

Article I. Employee Suggestion Awards

3.60.010 Suggestion award program—Established.

There is established an employee suggestion award program for employees and retired employees of the Metropolitan Government of Nashville and Davidson County. Under this program, cash or honorary awards may be made to employees of the metropolitan government and retired employees of the metropolitan government whose adopted suggestions will result in substantial savings or improvement in operations of the metropolitan government. (Prior code § 2-1-3.8 (a))

3.60.020 Suggestion award board—Established.

There is established an employee suggestion award board which shall be composed of the following members: the director of finance or his representative; the director of personnel or his representative; four members of council, two of whom must be members of the personnel committee and elected by such committee, one of whom must be a member of the budget and finance committee and elected by such committee, and one member to be appointed by the vice-mayor; and one member to be appointed by the vice-mayor upon recommendation of the Nashville Chamber of Commerce. (Amdt. 1 to Ord. 90-1416, 11/20/90; Ord. 90-1416 § 1, 1990; prior code § 2-1-3.8 (b))

3.60.030 Suggestion award board—Powers and duties.

A. It shall be the duty of the board to adopt rules governing its proceedings, to elect a chairman and secretary, to keep permanent and accurate records of its proceedings, to establish criteria for making awards, to adopt rules and regulations to carry out provisions of this article and to approve each award made.

B. In promulgating rules and regulations, the board shall consider the following factors: severity of the present problem, effectiveness of the suggestion offered, probability of occurrence of improvements in metropolitan government operations, and ingenuity of the suggestion. (Prior code § 2-1-3.8 (c))

3.60.040 Maximum cash awards—Appropriation item charged.

A. The maximum cash award shall be limited to ten percent of the first year's estimated savings, or six thousand dollars, whichever is less.

B. Any cash awards approved by the board shall be charged against the appropriation item or items to which estimated savings apply. (Prior code § 2-1-3.8 (e))

3.60.050 Positions excluded from receiving suggestion awards.

In establishing criteria for making awards, the board may exclude certain levels of positions from participation in the program, but in no event shall the following levels of management be eligible to receive cash awards under the program: the mayor's staff, department heads, assistant director's of departments, associate directors of departments, and heads of divisions. (Prior code § 2-1-3.8 (d))

Article II. Award Program for Recovered Funds

3.60.060 Award program—Established.

There is established an award program for employees of the Metropolitan Government of Nashville and Davidson County. Under this program, awards may be made to employees of the metropolitan government who provide information relative to illegal or inappropriate actions of fellow employees which result in substantial savings or improvement in operations of the metropolitan government. (Prior code § 2-1-3.9 (a))

3.60.070 Award board—Established—Powers and duties.

A. There is established an employee award board which shall be composed of the members of the personnel, public information, human relations, and housing committee of the metropolitan county council.

B. It shall be the duty of the board to adopt rules governing its proceedings, to keep permanent and accurate records of its proceedings, to establish criteria for making awards, to adopt rules and regulations to carry out provisions of this article, and to approve each award made. (Prior code § 2-1-3.9 (b), (c))

3.60.080 Type of award.

A proper testimonial award shall be made to deserving employees which shall be in the form of a United States Savings Bond. (Prior code § 2-1-3.9 (e))

3.60.090 Positions excluded from receiving awards.

In establishing criteria for making awards, the board may exclude certain levels of positions from participation in the program, but in no event shall the following levels of management be eligible to receive awards under the program: the mayor's staff, department heads, assistant directors of departments, associate directors of departments, and heads of divisions. (Prior code § 2-1-3.9 (d))

Chapter 3.64

EMPLOYEE ASSISTANCE PROGRAM

Sections:

3.64.010	**Employee assistance program—Division of metropolitan health department.**
3.64.020	**Employees of program—Appointment—Status as civil service employees.**
3.64.030	**Employee assistance program—Scope—Availability to whom.**

3.64.010 Employee assistance program—Division of metropolitan health department.

A. The present functions of the employee assistance program of the metropolitan benefit board are hereby placed as a division in the metropolitan human resources department. The employee assistance program shall be under the direction of the director of the program, who shall report directly to the director of the metropolitan human resources department.

B. All positions and personnel assigned to the employee assistance program at the metropolitan employee benefit board shall be transferred to the metropolitan human resources department as of the effective date of the ordinance codified in this chapter.

C. No other department within the metropolitan government has the authority to create a separate employee assistance program. (Ord. BL2000-292 § 1, 2000; Ord. 94-1056 §§ 2, 3 and 6, 1994)

3.64.020 Employees of program—Appointment—Status as civil service employees.

The director of the metropolitan human resources department shall appoint all employees, subject to the approval of the civil service commission. All employees of the program shall be civil service employees of the Metropolitan Human Resources Department unless the ordinance creating positions for the program shall provide otherwise. (Ord. BL2000-292 § 1 (part), 2000; Ord. 94-1056 § 4, 1994)

3.64.030 Employee assistance program—Scope—Availability to whom.

It shall be the responsibility of the director of the employee assistance program, along with the director of the metropolitan human resources department, to develop policies and procedures as to the implementation of the employee assistance program. These policies and procedures must be approved by the civil service commission. The educational or counseling programs and issues addressed by the employee assistance program may include chemical or substance abuse, mental or emotional illness, finances, legal issues, marital and family distress, and other personal problems as the director of the employee assistance program, along with the concurrence of the director of the metropolitan human resources department, deems appropriate and that can be implemented within the employee assistance program budget allocation. This confidential program shall be available to all employees of the metropolitan government and their families. Employees of the metropolitan department of police may use the services of the employee assistance program or the police advocate support services (PASS). The police advocate support services is a separate program which is not a part of the employee assistance program. (Ord. BL2000-292 § 1 (part), 2000; Amdt. 1(2) to Ord. 94-1056, 6/22/94; Ord. 94-1056 § 5, 1994)

Title 4

PROCUREMENT CODE

Chapters:

4.04	**General Provisions**
4.08	**Procurement Organization**
4.12	**Source Selection and Contract Formation**
4.16	**Specifications**
4.20	**Procurement of Construction Contracts**
4.24	**Modification and Termination of Contracts for Supplies and Services**
4.28	**Discrimination in Employment**
4.32	**Supply Management**
4.36	**Legal and Contractual Remedies**
4.40	**Specific Procedures**
4.44	**Assistance to Small, Disadvantaged, and Service-Disabled Veteran Owned Businesses**
4.46	**Procurement Nondiscrimination Program**
4.46	**Equal Business Opportunity Program**
4.48	**Ethics in Public Contracting**

Chapter 4.04

GENERAL PROVISIONS

Sections:

4.04.010	**Title, purposes and rules of construction.**
4.04.020	**Application of this code.**
4.04.030	**Severability.**
4.04.040	**Determinations retained in contract files.**
4.04.050	**Definitions.**
4.04.060	**Authorization for the use of electronic transmissions.**
4.04.070	**Public access to procurement information.**
4.04.080	**Procurement contract reports to be submitted to the council.**

4.04.010 Title, purposes and rules of construction.

A. Title. The ordinance codified in this title may be cited as "The 1992 Procurement Code of the Metropolitan Government" and is sometimes referred to hereafter as the "code."

B. Interpretation. This code shall be construed and applied to promote its underlying purposes and policies.

C. Purposes and Policies. The underlying purposes and policies of this code are:

1. To simplify, clarify and modernize the law governing procurements by the Metropolitan Government of Nashville and Davidson County, referred to hereafter as metropolitan government";

2. To permit the continued development of procurement policies and practices;

3. To provide for increased public confidence in the procedures followed in public procurement;

4. To ensure the fair and equitable treatment of all persons who deal with the procurement system of the metropolitan government;

5. To provide increased economy in the metropolitan government's procurement activities and to maximize to the fullest extent practicable the purchasing value of public funds of the metropolitan government;

6. To foster effective broad-based competition within the free enterprise system while ensuring procurements meeting the needs of the metropolitan government; and

7. To provide safeguards for the maintenance of a procurement system of quality and integrity.

D. Singular-Plural and Gender Rules. In this code, unless the context requires otherwise:

1. Words in the singular number include the plural and those in the plural include the singular, and

2. Words of a particular gender include any gender and the neuter and when the sense so indicates, words of the neuter gender may refer to any gender. (Ord. 92-210 § 1 (1-101), 19920

4.04.020 Application of this code.

A. General Application. This code applies only to contracts solicited or entered into after the effective date of the ordinance codified in this title unless the parties agree to its application to a contract solicited or entered into prior to the effective date.

B. Application to Metropolitan Government Procurements. Except as provided in subsection C hereof, this code shall apply to the procurement and disposal of all necessary and appropriate supplies, materials, equipment, other personal property, contractual services, insurance and surety bonds for the use of the Metropolitan Government and its departments, boards, commissions, officers and agencies. Nothing in this code or in regulations promulgated hereunder shall prevent any entity of Metropolitan Government from complying with the terms and conditions of any grant, gift, bequest or cooperative agreement. where otherwise authorized by law.

C. Exempted Boards and Agencies. The following agencies of metropolitan government are exempted from compliance with this code:

1. The electric power board;
2. The metropolitan development and housing agency;
3. The metropolitan board of public education;
4. The metropolitan transit authority;
5. The hospital authority of the Metropolitan Government of Nashville and Davidson County; and
6. The metropolitan department of law shall be exempt from the requirements of this code in the acquisition of expert witness, consultant, additional counsel, court reporter, and other services required in litigation or other legal representation of the metropolitan government.

D. Exempt Agencies May Request Assistance. Any of the administrative departments, boards or commissions of the metropolitan government which are excluded from the purchasing procedures established by the Metropolitan Charter of this code, or which may hereafter be so excluded, may request the purchasing agent, as agent for such administrative department, board or commission, to perform the purchasing functions prescribed by the Metropolitan Charter or this code on behalf of such administrative department, board or commission; provided, that such request be made in writing by the director of such administrative department and approved by the mayor, or, if a board or commission, by resolution of such board or commission approved by the mayor. A copy of all such requests and resolutions, when approved

by the mayor, shall be delivered to the purchasing agent as his authority to act as purchasing agent for the administrative board or commission, and a copy of such request, as approved by the mayor, shall be filed with the metropolitan clerk. (Ord. 99-1528 § 1, 1999; Ord. 92-210 § 1 (1-102), 1992)

4.04.030 Severability.

If any provision of this code or any application thereof to any person or circumstances is held invalid, such invalidity shall not affect other provisions or applications of this code which can be given effect without the invalid provision or application, and to this end the provisions of this code are declared to be severable. (Ord. 92-210 § 1 (1-103), 1992)

4.04.040 Determinations retained in contract files.

Written determinations required by this code shall be retained in the appropriate contract file in the purchasing division and may be inspected there by the public as permitted by law. (Ord. 92-210 § 1 (1-201), 1992)

4.04.050 Definitions.

A. The words defined in this Section shall have the meanings set forth below wherever they appear in this code unless:

1. The context in which they are used clearly requires a different meaning; or

2. A different definition is prescribed for a particular Article or provision.

B. The Standards Board may, by regulation, provide more specific definitions.

"Business" means any corporation, partnership, individual, sole proprietorship, joint stock company, joint venture or any other private legal entity.

"Change order" means any written alteration in specifications, scope of construction, delivery point, rate of delivery, period of performance, price, quantity or other provision of any contract.

"Construction" means the process of building, altering, repairing, improving or demolishing any public structure or building or other public improvements of any kind to any public real property. It does not include the routine operation, routine repair or routine maintenance of existing structures, buildings or real property.

"Contract" means all types of metropolitan government agreements and contracts, regardless of what they may be called, for the procurement or disposal of supplies, services or construction.

"Contractor" means any person having a contract with the metropolitan government.

"Data" means recorded information, regardless of form or characteristic.

"Designee" means a duly authorized representative of a person holding a superior position.

"Electronic" means electrical, digital, magnetic, optical, electromagnetic, and any similar technology.

"Employee" means an individual drawing a salary as other compensation for personal services from the metropolitan government, whether elected or not, but does not include independent contractors.

"May" denotes the permissive.

"Person" means any business, individual, union, committee, club, other organization or group of individuals.

"Procurement" means buying, purchasing, renting, leasing or otherwise acquiring any supplies, services or construction. It also includes all functions that pertain to the obtaining of any supply, service or construction, including description of requirements, selection and solicitation of sources, preparation and award of contract and all phases of contract administration.

"Public notice" means the distribution or dissemination of information to interested parties using methods that are reasonably available. Such methods will often include publication in newspapers of general circulation, electronic or paper mailing lists, and Web sites(s) designated by the metropolitan government and maintained for that purpose.

"Purchasing agent" means the head of the Division of Purchases created and provided for by the Metropolitan Charter, Section 8.108.

"Regulation" means a governmental body's statement, having general or particular applicability and future effect, designed to implement, interpret or prescribe policy, or describing organization, procedure of practice requirements which have been filed with the metropolitan clerk.

"Services" means the furnishing of labor, time or effort by a contractor, not primarily involving the delivery of a specific end product other than reports. This term shall not include employment agreements.

"Shall" denotes the imperative.

"Signature" means a manual or electronic identifier or the electronic result of an authentication technique, attached to or logically associated with a record, that is intended by the person using it to have the same force and effect as a digital signature.

"Supplies" means all property, including but not limited to equipment and materials.

"Using agency" means any department, board, commission or agency of the metropolitan government which uses any supplies, services, or construction procured under this code.

"Written" or "in writing" means the product of any method of forming characters on paper, other materials, or viewable screens, which can be read, retrieved, and reproduced, including information that is electronically transmitted and stored. (Ord. 2002-1232 § 3 (part), 2002; Ord. 92-210 § 1 (1-301), 1992)

4.04.060 Authorization for the use of electronic transmissions.

The use of electronic media, including acceptance of electronic signatures is authorized, consistent with the metropolitan government's applicable legal and regulatory requirements for use of such media, so long as the guidance provides for:

1. Appropriate security to prevent unauthorized access to the bidding, approval, and award processes; and

2. Accurate retrieval or conversion of electronic forms of such information into a medium which permits inspection and copying. (Ord. 2002-1232 § 3 (part), 2002)

4.04.070 Public access to procurement information.

Procurement information shall be public records, open to inspection and copying during normal business hours. Information on a particular procurement shall be open to the public only after bid evaluation. In accordance with regulations of the Standards Board, the Purchasing Division may charge a reasonable cost for copying records. (Ord. 92-210 § 1 (1-401), 1992)

4.04.080 Procurement contract reports to be submitted to the council.

Not later than the tenth day of each month, the purchasing agent shall prepare and submit a monthly report to the council regarding all procurement contracts approved during the previous month. Such report shall include, but not be limited to, the following information:

1. The name of the contractor or vendor to whom the contract was awarded.

2. The total amount of the contract.

3. The payment terms of the contract.

4. A description of the goods and/or services to be provided.

5. The name of all other bidders/offerors, and the amount of each bid or offer.

The purchasing division shall also maintain a list of all persons or entities with which metro government (inclusive of all departments, agencies, and other public entities) contracts. The list shall note which of those persons or entities have voluntarily disclosed that they employ or utilize temporary laborers. As used in this section, "temporary laborer" shall mean a natural person who contracts for employment with any person or entity engaged in the business, for profit, of employing such laborers to perform work or provide services to or for any entity performing work within the scope of an award. The purchasing division shall create this list by no later than November 1, 2021 and, at least once a year every year thereafter, it shall update and present the list to the standards board and the metro council. (Ord. BL2021-676 § 3, 2021; Ord. BL2006-1012 § 1, 2006)

Chapter 4.08

PROCUREMENT ORGANIZATION

Sections:

4.08.010	**Procurement standards board—Creation and membership—Administration support.**
4.08.020	**Procurement standards board—Powers and duties.**
4.08.030	**Division of purchases.**
4.08.040	**Purchasing agent—Powers and duties.**
4.08.050	**Purchasing agent—Additional duties.**
4.08.060	**Delegation of authority by the purchasing agent.**
4.08.070	**Centralization of procurement authority.**
4.08.080	**Authority to contract for professional services.**
4.08.090	**Procurement regulations—Applicability.**
4.08.100	**Collection of data concerning public procurement.**
4.08.110	**Advisory groups.**

4.08.010 Procurement standards board—Creation and membership—Administration support.

A. Creation of the metropolitan government procurement standards board. There is hereby created the metropolitan government procurement standards board, referred to hereafter as the "standards board."

B. Membership of the standards board. The standards board shall be composed of seven members as follows:

1. The director of finance of metropolitan government, who shall serve as chairperson of the board, and who may be represented by a designee;

2. The director of law of metropolitan government, who may be represented by a designee;

3. The head of another department of the metropolitan government, to be appointed to the board by the mayor;

4. One outside member, not an employee or elected official of the metropolitan government, appointed by the metropolitan county council, who shall be selected by that body by a majority vote of its membership, to serve a term of three years, or until a successor has been duly appointed and qualified;

5. Three other outside members, not employees or elected officials of metropolitan government, two of whom shall be appointed by the mayor and one of whom shall be appointed by the metro human relations commission, as provided herein, and all shall be confirmed by a majority vote of the whole membership of the council. These members shall serve a term of three years, respectively, or until a successor has been duly appointed and qualified; except, of the members first appointed, one shall serve for a term of two years and one shall serve for a term of three years. Of these two outside members appointed by the mayor, at least one shall be a representative of labor.

6. Provided, however, of the seven members, at least one shall be a female and at least one shall be an African American, provided however, that an African-American female shall not satisfy the requirement of one female and one African American, and shall meet the requirement of only one such position.

C. Reappointment and Vacancies. Outside members of the standards board may be reappointed. Any vacancy occurring during the unexpired term of any outside member shall be filled in the manner prescribed herein for the original appointment and shall be for the unexpired portion of the term. In the event of a vacancy in the positions of director of finance or director of law, the respective acting director shall serve until the vacancy is filled.

D. Administrative Support. The director of finance shall provide such services and administrative support as the standards board may request from time to time. (Ord. BL2021-676 § 1, 2021; Amdt. 2 to Ord. 92-210, 4/7/92; Ord. 92-210 § 1 (2-101), 1992)

Editor's note—The provision above designating board seats based on race and gender is void pursuant to Public Chapter 458 (2025).

4.08.020 Procurement standards board—Powers and duties.

A. The standards board shall have the authority and responsibility to promulgate regulations, consistent with this code, governing the procurement, management, control and disposal of any and all supplies, services and construction to be procured by the metropolitan government and all its departments, boards, commissions, officers and agencies, except those set out in Section 4.04.020(C) of this code.

B. The standards board shall consider and decide matters of policy within the provisions of this code, including those referred to it by the purchasing agent. The standards board shall have the power to audit and monitor the implementation of its regulations and the requirements of this code, but shall not exercise authority over the award or administration of any particular contract or over any dispute, claim or litigation pertaining thereto.

C. The standards board shall provide the public an established process for comment relative to the promulgation of regulations. (Ord. BL2021-676 § 2, 2021; Ord. 92-210 § 1 (2-102), 1992)

4.08.030 Division of purchases.

The division of purchases in the department of finance shall consist of the purchasing agent and such other officers and employees, organized into such units or sections as recommended by the purchasing agent and approved by the director of finance. The purchasing agent shall be responsible for the general management and control of the division and shall assign the duties and responsibilities of all employees of the division. (Ord. 92-210 § 1 (2-102), 1992)

4.08.040 Purchasing agent—Powers and duties.

A. Principal Contracting Officer of the Metropolitan Government. The purchasing agent shall serve as the central procurement officer of the metropolitan government.

B. Power to Adopt Operational Procedures. Consistent with the provisions of this code and regulations that may be promulgated by the standards board, the purchasing agent may adopt operational procedures governing the internal operations of the purchasing division, subject to the approval of the director of finance.

C. Duties. Except as otherwise specifically provided by this code, the purchasing agent shall, in accordance with regulations promulgated by the standards board:

1. Procure or supervise the procurement of all supplies, services, and construction needed by the metropolitan government;

2. Sell, trade, or otherwise dispose of surplus supplies belonging to the metropolitan government;

3. Establish and maintain programs for the inspection, testing and acceptance of supplies, services and construction;

4. With the approval of the director of finance and the mayor, and after consultation with the heads of the using agencies concerned, establish and enforce standard specifications for all supplies, materials and equipment required by the metropolitan government which the purchasing agent has authority to purchase or lease;

5. Prescribe the time of making requisitions for such supplies, materials and equipment and the future period which such requisitions are to cover; and

6. Submit reports as requested by the director of finance and the standards board. (Ord. 2002-1232 § 3 (part), 2002; Ord. 92-210 § 1 (2-202), 1992)

4.08.050 Purchasing agent—Additional duties.

Unless the director of finance assigns the following duties to some other division in his department, the purchasing agent shall also, in accordance with regulations promulgated by the standards board:

A. Inspect or cause to be inspected all deliveries of such supplies, materials and equipment and cause tests to be made when necessary in order to determine their quality, quantity and conformance with specifications;

B. Determine whether needs for specific supply items and categories of supplies can best be met through maintenance of inventory or the establishment and use of term contracts; and

C. Transfer to or between using agencies, with the approval of the director of the public property administration, and sell or trade in supplies, materials or equipment determined by him, after consultation with the heads of the using agencies concerned, to be surplus, obsolete or unused. (Ord. 2002-1232 § 3 (part), 2002; Ord. 92-210 § 1 (2-203), 1992)

4.08.060 Delegation of authority by the purchasing agent.

Subject to the regulations of the standards board, the purchasing agent may delegate authority to officers and employees of the division of purchases or to any department, agency or official and may set conditions for such delegation. (Ord. 92-210 § 1 (2-204), 1992)

4.08.070 Centralization of procurement authority.

Except as otherwise provided in this code, the division of purchases shall, in accordance with regulations promulgated by the standards board, procure for the use of the metropolitan government and its departments, boards, commissions, officers and agencies all necessary and appropriate supplies, materials, equipment, other personal property, contractual services, insurance and surety bonds. (Ord. 92-210 § 1 (2-301), 1992)

4.08.080 Authority to contract for professional services.

A. General Authority. Contracts for legal services, medical services, accounting services, fiscal agents, financial advisors or advisory services, educational consultants, architectural services, engineering services, and similar services by professional persons or groups of high ethical standards, shall not be based on competitive sealed bids, but shall be awarded on the basis of recognized competence and integrity.

B. Contracts for Professional Services as described above shall be awarded pursuant to regulations adopted by the standards board and shall be approved by the mayor. The board's regulations may exempt such services from the requirements of centralized purchasing.

C. Contracts for Legal Services. Services of special counsel shall be obtained pursuant to Section 8.607 of the Metropolitan Charter. No contract for the services of legal counsel may be awarded without the approval of the director of law, except for special counsel for the metropolitan council.

D. Independent Audit Firm. The services of an independent audit firm shall be obtained pursuant to Section 6.15 of the Metropolitan Charter.

E. Contracts for information management services, including, but not limited to, computer program analyst services shall, be procured through a request for proposals process. The request for proposals process will invite prospective proposers to participate and will indicate the service requirements and the factors used for evaluating the proposals. Such factors shall include cost, vendor's qualifications and any additional factor or factors deemed relevant by the procuring entity for the procurement of the service; cost is not to be the sole criteria for evaluation. The contract for such services will be awarded to the best evaluated, responsive proposer. (Ord. 92-456 § 1, 1992; Ord. 92-210 § 1 (2-302), 1992)

4.08.090 Procurement regulations—Applicability.

A. Regulations. Regulations promulgated by the standards board shall not become effective until they have been on file with the metropolitan clerk for thirty days.

B. Regulations Shall Not Change Existing Contract Rights. No regulation promulgated by the standards board shall change or modify any commitment, right or obligation of the metropolitan government or of a contractor under a contract in existence on the effective date of such regulation. (Ord. 92-210 § 1 (2-501), 1992)

4.08.100 Collection of data concerning public procurement.

The purchasing agent shall cooperate with the director of finance and the standards board in the preparation of statistical data concerning the procurement, use and disposition of all supplies, services and construction and shall employ such trained personnel as may be necessary to carry out this function. All using agencies of the metropolitan government shall furnish such reports as the purchasing agent may require concerning usage, needs and stocks on hand. The purchasing agent shall have authority to prescribe forms to be used by the using agencies in the requisitioning, ordering and reporting of supplies, services and construction. (Ord. 92-210 § 1 (2-501), 1992)

4.08.110 Advisory groups.

The standards board may establish an advisory group or groups who may conduct studies, research, analyses and make reports and recommendations with respect to subjects or matters within the jurisdiction of the standards board. The purchasing agent may appoint advisory groups to assist with respect to specifications or procurement in specific areas and with respect to any other matters within the authority of the purchasing agent. (Ord. 92-210 § 1 (2-502), 1992)

Chapter 4.12

SOURCE SELECTION AND CONTRACT FORMATION

Sections:

4.12.010	**Definitions.**
4.12.020	**Methods of source selection.**
4.12.030	**Competitive sealed bidding.**
4.12.040	**Competitive sealed proposals.**
4.12.050	**Reserved.**
4.12.060	**Sole source procurement.**
4.12.070	**Emergency procurements.**
4.12.080	**Utilities.**
4.12.090	**Purchases through state and other governments.**
4.12.093	**Intergovernmental cooperative purchasing.**
4.12.095	**Privatization contracts.**
4.12.100	**Cancellation of invitations to bid or requests for proposals.**
4.12.110	**Responsibility of bidders and offerors.**
4.12.120	**Prequalification of suppliers—Lists of established suppliers.**
4.12.130	**Cost or pricing data.**
4.12.140	**Types of contracts.**
4.12.150	**Term contracts.**
4.12.160	**Multi-year contracts.**
4.12.170	**Right to inspect plant.**
4.12.180	**Right to audit records.**
4.12.190	**Reporting of anticompetitive practices.**
4.12.200	**Retention of procurement records.**
4.12.210	**Reports of procurement actions.**
4.12.220	**Contracts relating to solid waste collection and disposal.**
4.12.230	**Contracts for government relations and lobbying services.**
4.12.240	**Contracts for correctional facility management services.**

4.12.010 Definitions.*

"Anticompetitive practice" means any practice between or among bidders or offerors that, in the judgment of the purchasing agent and the director of law, has the effect of reducing or eliminating competition or restraining trade. An anticompetitive practice includes, but is not limited to,

1. An agreement, oral or written, between or among suppliers to submit collusive bids or proposals,

2. An agreement, oral or written, between or among suppliers to not compete or not bid on a metro solicitation,

3. An agreement, oral or written, between or among suppliers to control the resale price of products, or

4. A non-compete or non-bid agreement between or among prime contractors and/or subcontractors.

"Competitive bidding" means:

Dollar Amount of Purchase	Requirements
Up to $4,999.99	A minimum of one written quotation is required.
$5,000.00—$50,000.00	A minimum of three written quotations are required. Where availability exists, at least one of the three written quotes shall be solicited from a certified minority-owned business enterprise (MBE) or women-owned business enterprise (WBE). Where availability exists, at least one of the three written quotes shall be solicited from a certified small business enterprise (SBE) or service-disabled veteran owned enterprise (SDV).
Above $50,000.00	Competitive sealed bids or request for proposals.

The above dollar thresholds shall be inclusive of the total project cost up to a maximum term of sixty months. The department shall award to the offer they determine most advantageous to Metro.

Editor's note—The definition above requiring quotas based on race and gender is void pursuant to Public Chapter 458 (2025)

"Established catalogue price" means the price included in a catalogue, price list, schedule or other form that:

1. Is regularly maintained by a manufacturer or contractor;

2. Is either published or otherwise available for inspection by customers; and

3. States prices at which sales are currently or were last made to a significant number of any category of buyers or buyers constituting the general buying public for the supplies or services involved.

"Invitation to bid" means all documents, whether attached or incorporated by reference, utilized for soliciting bids.

*__Editor's note—__**Ord. BL2021-676, adopted May 4, 2021, amending Section 4.12.010 was preempted by Tennessee General Assembly (SB 1150/HB 1112) Public Chapter No. 234. Therefore, the amendments to Section 4.12.010 preempted by Public Chapter No. 234 are not codified or published in the Metropolitan Code.

"Multi-step sealed bidding" is a two-phase process consisting of a technical first phase composed of one or more steps in which bidders submit unpriced technical offers to be evaluated by the metropolitan government and a second phase in which those bidders whose technical offers are determined to be acceptable during the first phase have their price bids considered. It is designed to obtain the benefits of competitive sealed bidding by award of a contract to the lowest responsive, responsible bidder, and at the same time obtain the benefits of the competitive sealed proposals procedure through the solicitation of technical offers and the conduct of discussions to evaluate and determine the acceptability of technical offers.

"Purchase description" means the words used in a solicitation to describe the supplies, services or construction to be purchased and includes specifications attached to, or made a part of, the solicitation.

"Request for proposals" means all documents, whether attached or incorporated by reference, utilized for soliciting proposals.

"Responsible bidder or offeror" means a person who possesses the capability in all respects to perform fully the contract requirements and the integrity and reliability which assures good faith performance. In the event a court of competent jurisdiction or a governmental regulatory agency issues a final ruling, declaration, or finding that a bidder or offeror committed a willful violation, or multiple violations, of any federal or state law or regulation regarding employment practices or safety standards within the preceding five years prior to submission of the bid or offer, such determination may be deemed evidence of a lack of integrity and reliability and allow the purchasing agent to disqualify a person from meeting the definition of "responsible bidder or offeror".

As used in this Section, "employment practices" shall refer to matters regulated under The Fair Labor Standards Act of 1938, 29 U.S.C. § 201-219; The Family Medical Leave Act, 29 U.S.C. § 2601, et seq.; Title VII of the Civil Rights Act of 1964 and 42 U.S.C. 1981 (Section 1981); The Age Discrimination in Employment Act, 29 U.S.C. § 621, et seq.; The Americans with Disabilities Act of 1990, 42 U.S.C. § 12101; The Rehabilitation Act of 1973, 29 U.S.C. § 701, et seq. or the Education Amendments Act of 1972, 20 U.S.C. § 1681, et seq.

"Responsive bidder" means a person who has submitted a bid which conforms in all material respects to the invitation to bid. (Ord. BL2025-1065 § 1, 2025; Ord. BL2024-626 § 1, 2024; Ord. BL2019-1731 § 1, 2019; Ord. BL2019-1525 § 1, 2019; Ord. 2002-1232 § 3 (part), 2002; Ord. 95-1428 § 1, 1995; Ord. 92-210 § 1 (3-101), 1992)

4.12.020 Methods of source selection.

Unless otherwise authorized by law, all metropolitan government contracts shall be awarded by competitive sealed bidding, pursuant to Section 4.12.030 of this code. Competitive sealed bidding, except as provided in:

A. Section 4.08.080, Authority to contract for professional services;

B. Section 4.12.040, Competitive sealed proposals;

C. Section 4.12.060 Sole source procurement;

D. Section 4.12.070, Emergency procurements;

E. Section 4.12.080 Utilities;

F. Section 4.12.090 Purchases through state and other governments. (Ord. BL2025-1066 § 2, 2025; Ord. 92-210 § 1 (32-2012), 1992)

4.12.030 Competitive sealed bidding.

A. Conditions for Use. Contracts shall be awarded by competitive sealed bidding except as otherwise provided in Section 4.12.020 of this code, Methods of source selection.

B. Invitation to Bid. An invitation to bid shall be issued and shall include a purchase description and all contractual terms and conditions applicable to the procurement. The invitation to bid shall require that the bidder execute an affidavit, in a form prescribed in the invitation to bid, certifying that the bidder is and will remain in compliance with the provisions of this chapter and the contents of its bid as submitted, and further that the bidder understands that failure to remain in such compliance shall constitutes a material breach of its contract with the metropolitan government. The affidavit required by this section shall be submitted with bidder's bid.

C. Public Notice. Adequate public notice of the invitation to bid shall be given a reasonable time prior to the date set forth therein for the opening of bids, in accordance with regulations promulgated by the standards board. The standards board may require different types of public notice on the basis of the size of the purchase or contract, or the type of supplies, services or construction. Such notice may include, but is not limited to, publication in a newspaper of general circulation a reasonable time prior to bid opening, mailing to suppliers on a list of established suppliers, and/or posting notice.

D. Bid Opening. Bids shall be publicly opened in the presence of one or more witnesses at the time and place designated in the invitation for bids. The amount of each bid and such other relevant information as may be specified by regulation, together with the name of each bidder, shall be read aloud and recorded and the record shall be open to public inspection.

E. Bid Acceptance and Bid Evaluation. Bids shall be accepted without alteration or correction, except as authorized in this code. Bids shall be evaluated based on the requirements set forth in the invitation to bid, which may include criteria to determine acceptability such as inspection, testing, quality, workmanship, delivery and suitability for a particular purpose. Those criteria that will affect the bid price and be considered in evaluation for award shall be objectively measurable, such as discounts, transportation costs and total or life cycle costs. The invitation to bid shall set forth the evaluation criteria to be used. No criteria may be used in bid evaluation that are not set forth in the invitation to bid.

F. Correction or Withdrawal of Bids; Cancellation of Awards. Correction or withdrawal of inadvertently erroneous bids before or after award, or cancellation of awards or contracts based on such bid mistakes, shall be permitted in accordance with regulations promulgated by the standards board. After bid opening no changes in bid prices or other provisions of bids prejudicial to the interest of the metropolitan government or fair competition shall be permitted. In accordance with regulations of the standards board, the purchasing division may correct mathematical errors. Except as otherwise provided by regulation, all decisions to permit the correction or withdrawal of bids, or to cancel awards or contracts based on bid mistakes, shall be supported by a written determination made by the purchasing agent.

G. Multi-Step Sealed Bidding. When it is considered impractical to initially prepare a purchase description to support an award based on price, an invitation to bid may be issued requesting the submission of unpriced offers to be followed by an invitation to bid limited to those bidders whose offers have been qualified under the criteria set forth in the first solicitation. The standards board shall adopt regulations governing the use of multi-step sealed bidding and establishing procedures. Discussions conducted for the purposes of facilitating understanding of technical offers or specifications may result in the obtaining of supplemental information, amendments of technical offers, and/or amendments of the specifications.

H. Award. The contract shall be awarded with reasonable promptness by written notice to the lowest responsible and responsive bidder whose bid meets the requirements and criteria set forth in the invitation for bids.

I. Rejection. The purchasing agent may reject any and all bids received for purchases or sales. (Ord. BL2019-1731 § 2, 2019; Ord. 92-210 § 1 (3-202), 1992)

4.12.040 Competitive sealed proposals.

A. Conditions of Use. When, under regulations promulgated by the standards board, the purchasing agent determines that the use of competitive sealed bidding is either not practicable or not advantageous to the metropolitan government, a contract may be entered into by competitive sealed proposals. The standards board may provide by regulation that it is either not practical or not advantageous to the metropolitan government to procure specified types of supplies, services or construction by competitive sealed bidding.

B. Request for Proposals. Proposals shall be solicited through a request for proposals.

C. Public Notice. Adequate public notice of the request for proposals shall be given in the same manner as provided in Section 4.12.030(C), Competitive sealed bidding, public notice.

D. Receipt of Proposals. Proposals shall be opened so as to avoid disclosure of contents to competing offerors during the process of negotiation. A register of proposals shall be prepared in accordance with regulations promulgated by the standards board and shall be open for public inspection after contract award.

E. Evaluation Factors. The request for proposals shall state the relative importance of price and other evaluation factors. The standards board shall adopt and promulgate regulations requiring that an offeror's prior metropolitan government audit findings and contract noncompliance, including but not limited to a failure or inability of the offeror to furnish documentation justifying billing to the metropolitan government under a previously-awarded contract, be included as part of the scoring under the evaluation factors.

F. Discussion with Responsible Offerors and Revisions to Proposals. As provided in the request for proposals and under regulations promulgated by the standards board, discussions may be conducted with responsible offerors who submit proposals determined to be reasonably susceptible of being selected for award for the purpose of clarification to assure full understanding of, and responsiveness to, the solicitation requirements. Offerors shall be accorded fair and equal treatment with respect to any opportunity for discussion and revision of proposals and such revisions may be permitted after submissions and prior to award for the purpose of obtaining best and final offers. In conducting discussions, there shall be no disclosure of any information derived from proposals submitted by competing offerors.

G. Award. Award shall be made to the responsible offeror whose proposal is determined to be the most advantageous to the metropolitan government taking

into consideration price and the evaluation factors set forth in the request for proposals. No other factors or criteria shall be used in the evaluation. The contract file shall contain the basis on which the award is made. (Ord. BL2021-738 § 1, 2021; Ord. 92-210 § 1 (3-203), 1992)

4.12.050 Reserved.

Editor's note—Ord. BL2025-1066 § 1, 2025, passed Nov. 4, 2025, repealed § 4.12.050, which pertained to small purchases and derived from Ord. 92-210 § 1 (3-204), 1992.

4.12.060 Sole source procurement.

A. A contract may be awarded for a supply, service or construction item without competition when, under regulations promulgated by the standards board, the purchasing agent determines in writing that there is only one source for the required supply, service or construction item. The standards board may, by regulation, establish specific categories of supplies, services, or construction items as sole source items.

B. In recognition that works of art and artistic services have unique characteristics, a contract may be awarded for a public art project, product, or service without competition when the Metropolitan Nashville Arts Commission, in accordance with its public art guidelines, determines that there is only one source for the product or service. The Metropolitan Nashville Arts Commission shall transmit to the purchasing agent for review and approval, a written sole source justification, reflecting the factual basis for the conclusion that there is only one source for the required public art project, product, or service.

C. Notwithstanding the foregoing, no sole source contract for the purchase of goods or services, excluding contracts for economic development initiatives and services, with a total contract amount in excess of three hundred fifty thousand dollars may be entered into unless and until such contract has been approved by resolution duly adopted by the council by twenty-one affirmative votes. (Ord. BL2025-1067 § 1, 2025; Ord. BL2017-861 § 1, 2017; Amdt. 1 to Ord. BL2013-338 § 1, 2013; Ord. BL2013-338 § 1, 2013; Ord. 92-210 § 1 (3-205), 1992)

4.12.070 Emergency procurements.

Notwithstanding any other provision of this code, the purchasing agent may make or authorize others to make, emergency procurements when there exists a threat to public health, welfare or safety under emergency conditions as defined in regulations promulgated by the standards board; provided that such emergency procurements shall be made with such competition as is practical under the circumstances. A written determination of the basis for the emergency and for the selection of the particular contractor shall be included in the contract file. Any department head or other official who makes an emergency purchase without following the regulations of the standards board may be held personally liable for such purchase. (Ord. 92-210 § 1 (3-206), 1992)

4.12.080 Utilities.

Subject to the rules of the standards board, the purchasing agent shall purchase or contract for all telephone or telecommunications, electricity, gas, power, water, postal, and other services for which a rate for the use thereof has been established by a public authority in such manner as the purchasing agent deems to be in the best interest of the metropolitan government. (Ord. 92-210 § 1 (3-207), 1992)

4.12.090 Purchases through state and other governments.

A. Purchase by State. As authorized by state law and in accordance with regulations of the standards board, the purchasing agent may request the State Department of General Services to purchase supplies and equipment for the metropolitan government.

B. Purchase from State Contracts. As authorized by state law and in accordance with regulations of the standards board, the purchasing agent may purchase, without public advertisement or competitive bidding, under the provisions of contracts or price agreements entered into by the State Department of General Services and open federal contracts in compliance with Tennessee Code Annotated Section 12-3-1001(c).

C. Purchase of Secondhand Articles from Government. As authorized by state law and in accordance with regulations of the standards board, the purchasing agent may purchase from any federal, state or local governmental unit or agency secondhand articles or equipment or other materials, supplies, commodities and equipment without public advertising and competitive bidding.

D. Purchase for or from Local Governmental Units. As authorized by state law and in accordance with regulations of the standards board, the purchasing agent may, upon request, purchase supplies, equipment or services for any other municipality, county, utility district or other local governmental unit. The cost of the purchase shall be borne by the local governmental entity for whom the purchase was made. In accordance with regulations of the standards board, the purchasing agent may request other local governments to purchase supplies, equipment or services for the metropolitan government.

E. The purchasing agent is authorized to enter into purchasing or contracting cooperatives with other governmental agencies and authorities outside the jurisdictional boundaries of the State of Tennessee, whether state or federal, to the extent permitted by Tennessee Code Annotated Section 12-9-104. (Ord. 98-1326 § 1, 1998; Ord. 97-1000 § 1, 1997; Ord. 92-210 § 1 (3-208), 1992)

4.12.093 Intergovernmental cooperative purchasing.

To the extent permitted by state law, the purchasing agent is authorized to participate in, sponsor, conduct, or administer a cooperative purchasing agreement for the procurement of any supplies, services, or construction with one or more other local governments in accordance with an agreement entered into between the participants. Such cooperative purchasing may include, but is not limited to, joint or multiparty contracts between local governments. Where the participants in a joint or multiparty contract are required to advertise and receive bids, it shall be sufficient for those purposes that the purchasing entity comply only with its own purchasing requirements. (Ord. 99-1804 § 1, 1999)

4.12.095 Privatization contracts.

A. No contract which provides for privatizing governmental services shall become effective unless and until such contract has been approved by ordinance adopted by the council. For the purposes of this section "privatizing governmental services" shall mean any services or work performed by employees of the metropolitan government as of the effective date of this ordinance, which services, if performed by nongovernmental entities, (1) would result in the termination, relocation, transfer or furloughing of one or more employees of the metropolitan government who were employed to provide such services; or (2) the elimination of any vacant position funded in the operating budget in the past eighteen months that provided such service; or (3) has a value or cost of one hundred thousand dollars or more, provided however, such term shall not include professional services.

B. Any contracts of metropolitan government entered into prior to the effective date of this ordinance may be renewed or extended, the provisions of this section to the contrary notwithstanding, provided such original contracts met the requirements of the provisions of the metropolitan Code at the time of their original execution.

C. No person, firm, or entity may contract for privatizing governmental services if they provided consulting services for metropolitan government in the year preceding the date of an invitation to bid, a request for proposals or other solicitation to contract recommending, suggesting, or advising that such services be privatized.

D. No contract for privatizing governmental services shall become effective unless all employees of metropolitan government who were providing such services be offered employment with metropolitan government at the same or greater pay grade and level.

E. No contract for privatizing governmental services may be approved unless a comprehensive written justification and cost-benefit analysis, prepared by the department or agency seeking to have such contract approved and approved by the director of finance, is filed with the council at the same time as the ordinance approving such contract. Such analysis shall include, but not be limited to, (1) a detailed explanation of the governmental services being privatized; (2) the cost for metropolitan government to continue providing such governmental services; (3) the anticipated cost-savings to metropolitan government; (4) the number, pay grade, and status of any metropolitan government employee positions to be eliminated; (5) the department or agency plan for assisting such employees in finding other employment within metropolitan government; and (6) a schedule and procedure of providing employees information of the changes to the department or agency and of their present and future employment status. (Amdt. 1 to Ord. BL2005-858, 2006; Ord. BL2005-858 § 1, 2006; Ord. 95-33 § 1, 1995)

4.12.100 Cancellation of invitations to bid or requests for proposals.

An invitation to bid, a request for proposals or other solicitation may be canceled, or any or all bids or proposals may be rejected in whole or in part, when it is in the best interests of the metropolitan government in accordance with regulations promulgated by the standards board. (Ord. 92-210 § 1 (2-301), 1992)

4.12.110 Responsibility of bidders and offerors.

A. Determination of Nonresponsibility. A written determination of nonresponsibility of a bidder or offeror shall be made in accordance with regulations promulgated by the standards board. The unreasonable failure of a bidder or offeror to promptly supply information in connection with an inquiry with respect to responsibility may be grounds for a determination of nonresponsibility with respect to such bidder or offeror. (Ord. 92-210 § 1 (3-401), 1992)

4.12.120 Prequalification of suppliers—Lists of established suppliers.

A. The standards board may, by regulation, allow the prequalification of prospective suppliers for particular types of supplies, services and construction. Solicitation mailing lists of potential contractors shall include, but shall not be limited to, such prequalified suppliers.

B. In accordance with regulations adopted by the standards board, the purchasing agent may maintain lists of established suppliers. Those regulations may allow the maintenance of lists by type of materials or services to be furnished or by other categories, may authorize selective mailings of invitations to bid based on specific criteria, and may provide for removal from the lists. (Ord. 92-210 § 1 (3-402), 1992)

4.12.130 Cost or pricing data.

The standards board may, by regulation, establish requirements for the furnishing of cost or pricing data in situations, including change orders or contract modification, where analysis of the proposed price is essential to determine that the price is reasonable and fair. Such data shall not be required where prices are based on adequate competition, established catalogue or market prices, or are regulated. (Ord. 92-210 § 1 (3-403), 1992)

4.12.140 Types of contracts.

Subject to the limitations of this section, any type of contract which will promote the best interest of the metropolitan government may be used; provided that the use of a cost-plus-a-percentage-of-cost contract for the purchase of goods or supplies is prohibited. A cost-reimbursement contract may be used only when such contract is likely to be less costly to the metropolitan government than any other type or that it is impracticable to obtain the supplies, services or construction required except under such a contract. (Ord. 92-210 § 1 (3-501), 1992)

4.12.150 Term contracts.

A. "Term contract" means a contract in which a source or sources of supply are established for a specified period of time at an agreed upon unit price(s).

B. More than one term contract may be let for the supply of any given class or type of supplies, equipment or service.

C. After term contracts have been awarded, the purchasing agent shall certify the sources of supply and the contract price for the various supplies, material, equipment and services so contracted for. The departments, agencies, boards and commissions of metropolitan government shall purchase from the source of supply contracts, unless authorized elsewhere in this code or by regulations of the standards board. (Ord. 92-210 § 1 (3-502), 1992)

4.12.160 Multi-year contracts.

A. Specified Period. Unless otherwise provided by law, a contract for supplies or services may be entered into for any period of time deemed to be in the best interest of the metropolitan government provided the term of the contract and any renewals or extensions do not exceed sixty months. The term of the contract and conditions of renewal or extension, if any, must be included in the solicitation and funds must be available for the first fiscal period at the time of contracting. Payment and performance obligations for succeeding fiscal periods shall be subject to the availability and appropriation of funds therefor.

B. Contracts for supplies or services entered into by the metropolitan government with terms exceeding a period of sixty months, either initially or by virtue of amendments, renewals or extensions thereof, must be authorized by the metropolitan council. Legislation seeking such authorization for service contracts must provide the following:

i. the beginning date of the contract as originally executed, the termination date of the contract as originally executed, and the revised termination date of the contract resulting from proposed amendments, extensions, or renewals thereof;

ii. whether the contract provides services previously provided by a department of the metropolitan government;

iii. the number of full time equivalent positions required to provide the services by the private contractor;

iv. a statement setting forth whether the services provided pursuant to the contract can be provided by a department of the metropolitan government and, if not, why not; and

v. a statement setting forth with specificity why it is in the best interests of the metropolitan government to execute, renew, and/or extend the contract.

C. Use. The standards board may, by regulation, establish additional conditions for use of multi-year contracts, set maximum terms for contracts for types of supplies, services, or construction items, and prescribe specific contract provisions including, but not limited to, cancellation by the metropolitan government at any time with reasonable notice.

D. Cancellation Due to Unavailability of Funds in Succeeding Fiscal Periods. When funds are not appropriated or otherwise made available to support continuation of performance in a subsequent fiscal period, the contract

shall be canceled. (Ord. BL2019-1612 § 1, 2019; Ord. 92-210 § 1 (3-503), 1992)

4.12.170 Right to inspect plant.

The metropolitan government may, at reasonable times, inspect the part of the plant or place of business of a contractor or any subcontractor which is related to the performance of any contract awarded or to be awarded by the metropolitan government. (Ord. 92-210 § 1 (3-601), 1992)

4.12.180 Right to audit records.

A. Audit of Cost or Pricing Data. The metropolitan government may, at reasonable times and places, audit the books and records of any person who has submitted cost or pricing data pursuant to regulations promulgated pursuant to Section 4.12.130, Cost or pricing data to the extent that such books and records relate to such cost or pricing data. Any person who receives a contract, change order, or contract modification for which cost or pricing data is required, shall maintain such books and records that relate to such cost or pricing data for three years from the date of final payment under the contract, unless a shorter period is otherwise authorized in writing.

B. Contract Audit. The metropolitan government shall be entitled to audit the books and records of a contractor or any subcontractor under any contract or subcontract to the extent that such books and records relate to the performance of such contract or subcontract. Such books and records shall be maintained by the contractor for a period of three years from the date of final payment under the prime contract and by the subcontractor for a period of three years from the date of final payment under the subcontract, unless a shorter period is authorized in writing. (Ord. 92-210 § 1 (3-602), 1992)

4.12.190 Reporting of anticompetitive practices.

When for any reason collusion or other anticompetitive practices are suspected among any bidders or offerors, a notice of the relevant facts shall be transmitted to the director of law. (Ord. 92-210 § 1 (3-701), 1992)

4.12.200 Retention of procurement records.

All procurement records shall be retained and disposed of in accordance with records retention guidelines and schedules approved by the standards board, the public records commission, and the director of law. All procurement records shall be retained for a period of at least three years; however, a longer retention period may be established. (Ord. BL2020-503 § 1, 2020; Ord. 92-210 § 1 (3-702), 1992)

4.12.210 Reports of procurement actions.

The standards board shall, by regulation, determine the content and frequency of various reports regarding procurement activity to be provided by the purchasing agent. (Ord. 92-210 § 1 (3-703), 1992)

4.12.220 Contracts relating to solid waste collection and disposal.

No contract providing for the collection, transportation and/or disposal of solid waste, whether temporary or permanent, which contracts provide for annual payment of one million dollars or more, including unit price contracts, may be entered into unless and until such contract has been approved by resolution duly adopted by the council by twenty-one affirmative votes. (Ord. BL2025-1068 § 1, 2025; Amdt. 1 to Ord. 94-966, 4/19/94; Ord. 94-966 § 1, 1994)

4.12.230 Contracts for government relations and lobbying services.

A. The metropolitan government shall not enter into or extend a contract for government relations or lobbying services with any individual or any entity that is also party to a contract that provides advice, counsel, or government relations or lobbying services in support of any measure that has the effect or goal of diverting public funds away from the metropolitan Nashville public school system.

B. All contracts entered into or extended by the metropolitan government for government relations or lobbying services shall include a clause that terminates the contract within ninety days or less should the contracted party enter into a contract to provide advice, counsel, government relations, or lobbying services in support of any measure that has the effect or goal of diverting public funds away from the metropolitan Nashville public school system.

C. All contracts for the provision of government relations and/or lobbying services on behalf of the metropolitan government shall include a requirement that the following reports be submitted to the metropolitan council:

1. While the Tennessee General Assembly is not in session, monthly reports stating the legislative goals identified by the mayor and any other officials of the metropolitan government.

2. During a legislative session of the Tennessee General Assembly, weekly reports regarding the impact pending legislation would have on the metropolitan

government and the efforts to lobby for or against specific legislation at the direction of the mayor or his/her designee(s).

3. Within thirty days of the conclusion of a legislative session of the Tennessee General Assembly, a report identifying the results of lobbying efforts taken on behalf of the metropolitan government and a summary of legislative action taken by the Tennessee General Assembly that is anticipated to have a significant impact on the metropolitan government.

D. All reports required by this section shall be provided to the metropolitan council in both electronic and hard copy.

E. The requirements set forth in this section shall be included as part of any request for proposals (RFP) for government relations and/or lobbying services issued by the metropolitan government. (Amdt. 1 to Ord. BL2019-1601 § 1, 2019; Ord. BL2019-1601 § 1, 2019; Ord. BL2014-847 § 1, 2014)

4.12.240 Contracts for correctional facility management services.

A. All contracts for the provision of management services for correctional facilities owned by the metropolitan government, executed on or after January 1, 2017, must be approved by resolution of the metropolitan council, duly adopted by twenty-one affirmative votes.

B. All contracts for the provision of management services for correctional facilities owned by the metropolitan government, executed on or after January 1, 2017, shall include a requirement that quarterly reports be submitted by the contractor to the metropolitan council disclosing the following:

1. The total current population of incarcerated individuals within the facility, and the total incarceration capacity of the facility;

2. The number of contractor staff members serving the facility;

3. A description of any incident at the facility in which an incarcerated individual's whereabouts could not be accounted for;

4. Any and all methods of discipline or punishment applied toward incarcerated individuals at the facility (e.g., solitary confinement, etc.)

5. Any and all actions pending against the contractor in state or federal court relating to the contractor's provision of correctional facilities management services within the United States;

6. Whether the contractor's provision of correctional facilities management services within the United States is the subject of any formal investigation by a state or federal agency;

7. Whether the contractor employs government relations and/or lobbying services within the United States Congress, Tennessee General Assembly, or Metropolitan Government of Nashville and Davidson County and, if so, the identity of the individuals so employed; and

8. Whether the contractor has expended or undertaken any effort in the preceding quarter to introduce or amend legislation regarding criminal offenses or the penalties therefor.

C. All reports required by this section shall be provided to the metropolitan council in both electronic and hard copy.

D. The requirements set forth in this section shall be included as part of any request for proposals (RFP) for correctional facilities management services issued by the metropolitan government. (Ord. BL2017-542 § 1, 2017)

Chapter 4.16

SPECIFICATIONS

Sections:

4.16.010	**Definitions.**
4.16.020	**Duties of the standards board.**
4.16.030	**Duties of the purchasing agent.**
4.16.040	**Exempted items.**
4.16.050	**Relationship with using agencies.**
4.16.060	**Economy and competition.**
4.16.070	**Specifications prepared by architects, engineers and consultants.**
4.16.080	**Energy efficiency standards and life cycle costs.**

4.16.010 Definitions.

As used in this chapter:

"Specification" means any description of the physical or functional characteristics, or of the nature of a supply, service or construction item. It may include a description of any requirement for inspection, testing or preparing a supply, service or construction item for delivery. (Ord. 92-210 § 1 (4-101), 1992)

4.16.020 Duties of the standards board.

The standards board shall promulgate regulations governing the preparation, maintenance and content of specifications for supplies, services and construction required by the metropolitan government. (Ord. 92-210 § 1 (4-201), 1992)

4.16.030 Duties of the purchasing agent.

The purchasing agent shall review the specifications submitted by departments in order to ensure that they identify minimum requirements, allow for maximum practicable competition, identify standards to be used in verifying compliance, and provide for an equitable award at the lowest possible cost. To the extent practicable, specifications shall be written in terms of performance and outcomes. (Ord. 2002-1232 § 3 (part), 2002; Ord. 92-210 § 1 (4-202), 1992)

4.16.040 Exempted items.

Specifications for supplies, services or construction items procured under Section 4.08.080, Authority to contract for professional services, or exempted pursuant to the Charter, the code, or regulations adopted pursuant to this code, may be prepared by the purchasing agent. (Ord. 92-210 § 1 (4-203), 1992)

4.16.050 Relationship with using agencies.

The purchasing agent shall obtain expert advice and assistance from personnel of the using agencies in the development of specifications and may delegate in writing to a using agency the authority to prepare and/or utilize its own specifications. Utilization of any specifications prepared by a using agency shall be subject to the approval of the purchasing agent. (Ord. 92-210 § 1 (4-204), 1992)

4.16.060 Economy and competition.

All specifications shall seek to promote overall economy for the purposes intended and encourage competition in satisfying the metropolitan government's needs and shall not be unduly restrictive. (Ord. 92-210 § 1 (4-205), 1992)

4.16.070 Specifications prepared by architects, engineers and consultants.

The requirements of this chapter regarding the purposes and nonrestrictiveness of specifications shall apply to all specifications, including, but not limited to, those prepared by architects, engineers, designers, draftsmen, and consultants for public contracts. (Ord. 92-210 § 1 (4-206), 1992)

4.16.080 Energy efficiency standards and life cycle costs.

To the extent required by state law, the metropolitan government shall adopt and incorporate into its procurements policies, through regulations of the standards board, energy efficiency standards and life cycle costing employed by the state in its procurement policies. (Ord. 92-210 § 1 (4-207), 1992)

Chapter 4.20

PROCUREMENT OF CONSTRUCTION CONTRACTS

Sections:

4.20.010	**Alternative methods of construction contracting management—Standards.**
4.20.020	**Bid security.**
4.20.030	**Contract performance and payment bonds.**
4.20.040	**Bond forms and copies.**
4.20.050	**Contract clauses and their administration.**
4.20.055	**Reserved.**
4.20.060	**Fiscal responsibility.**
4.20.065	**Business tax license requirement.**
4.20.070	**Declaration of policy—Payment of prevailing wages required.**
4.20.080	**Minimum wages requirements—Basis.**
4.20.090	**Prevailing wages—Rate schedules to be specification for work—Posting.**
4.20.100	**Payroll records—Contractor responsibility.**
4.20.105	**Utilization of apprentice, training, and certification programs—Employer information.**
4.20.110	**Violation of Title 4 provisions—Penalty.**
4.20.120	**Effect of federal action on wage determinations.**
4.20.130	**Contract and compliance board.**
4.20.140	**Reserved.**

4.20.010 Alternative methods of construction contracting management—Standards.

The standards board shall promulgate regulations providing for as many alternative methods of construction management as it may determine to be feasible. These regulations shall:

A. Set forth criteria to be used in determining which method of contracting management is to be used for a particular project; and

B. Grant to the purchasing agent the discretion to select the appropriate method of construction contracting management for a particular project. (Ord. 92-210 § 1 (5-101), 1992)

4.20.020 Bid security.

A. Requirement for Bid Security. Bid security shall be required for all competitive sealed bids for construction contracts when the price is estimated by the purchasing agent to exceed an amount established by the standards board. Bid security shall be a bond provided by a surety company authorized to do business in this state or the equivalent in cash or otherwise supplied in a form satisfactory to the purchasing agent in accordance with regulations of the standards board. Nothing herein prevents the requirement of such bonds on construction contracts under the amount set by the standards board when the circumstances warrant.

B. Amount of Bid Security. Bid security shall be in an amount equal to at least ten percent of the amount of the bid. The standards board, by regulation, may establish additional appropriate levels of bid security.

C. Rejection of Bids for Noncompliance with Bid Security Requirements. When the invitation to bid requires security, noncompliance requires that the bid be rejected unless, pursuant to standards board regulations, it is determined that the bid fails to comply in a nonsubstantial manner with the security requirements.

D. Withdrawal of Bids. After the bids are opened, they shall be irrevocable for the period specified in the invitation for bids, except as provided in Section 4.12.030(F), Competitive sealed bidding, correction or withdrawal of bids, cancellation of awards. If a bidder is permitted to withdraw its bid before award, no action shall be had against the bidder or the bid security. (Ord. 92-210 § 1 (5-201), 1992)

4.20.030 Contract performance and payment bonds.

A. When Required—Amounts. When a construction contract is awarded in excess of one hundred thousand dollars, the following bonds or security shall be delivered to the metropolitan government and shall become binding on the parties upon the execution of the contract:

1. A performance bond satisfactory to the metropolitan government, executed by a surety company authorized to do business in this state or otherwise secured in a manner satisfactory to the metropolitan government, in an amount equal to one hundred percent of the price specified in the contract; and

2. A payment bond satisfactory to the metropolitan government, executed by a surety company authorized to do business in this state or otherwise secured in a manner satisfactory to the metropolitan government for

the protection of all persons supplying labor and material to the contractor or its subcontractors for the performance of the work provided for in the contract. The bond shall be in an amount equal to one hundred percent of the price specified in the contract.

B. Reduction of Bond Amounts. The standards board may promulgate regulations that authorize the purchasing agent to reduce the amount of performance and payment bonds to fifty percent of the contract price for each bond.

C. Authority to Require Additional Bonds. Nothing in this section shall be construed to limit the authority of the metropolitan government to require a performance bond or other security in addition to those bonds or in circumstances other than specified in subsection A of this section. (Ord. BL2009-482 § 1, 2009; Ord. 92-210 § 1 (5-202), 1992)

4.20.040 Bond forms and copies.

A. Bond Forms. The standards board shall promulgate by regulation the form of the bonds required by Sections 4.20.020 through 4.20.040.

B. Certified Copies of Bonds. Any person may request and obtain from the metropolitan government a certified copy of a bond upon payment of the cost of reproduction of the bond and postage, if any. A certified copy of the bond shall be prima facie evidence of the contents, execution and delivery of the original. (Ord. 92-210 § 1 (5-303), 1992)

4.20.050 Contract clauses and their administration.

A. Contract Clauses. The standards board shall promulgate regulations requiring the inclusion in metropolitan government construction contracts of clauses providing for adjustment in prices, time of performance or other contract provisions, as appropriate, and covering the following subjects:

1. The unilateral right of the metropolitan government to order in writing:

a. Changes in the work within the scope of the contract, and

b. Changes in the time of performance of the contract that do not alter the scope of the contract work;

2. Variations occurring between estimated quantities of work in a contract and actual quantities;

3. Suspension of work ordered by the metropolitan government; and

4. Site conditions differing from those indicated in the contract, or ordinarily encountered, except that differing site conditions clauses promulgated by the standards board need not be included in a contract:

a. When the contract is negotiated,

b. When the contractor provides the site or design, or

c. When the parties have otherwise agreed with respect to the risk of differing site conditions.

B. Price Adjustments.

1. Adjustment in price pursuant to clauses promulgated under subsection A of this section shall be computed in one or more of the following ways:

a. By agreement on a fixed price adjustment before commencement of the pertinent performance or as soon thereafter as practicable,

b. By unit price specified in the contract or subsequently agreed upon,

c. By the costs attributable to the events or situations under such clauses with adjustment of profit or fee, all as specified in the contract or subsequently agreed upon,

d. In such other manner as the contracting parties mutually agree, or

e. In the absence of agreement by the parties, by a unilateral determination by the metropolitan government of the costs attributable to the events or situations under such clauses with adjustments of profits and fee, all as computed by the metropolitan government in accordance with applicable sections of the regulations of the standards board;

2. A contractor shall be required to submit cost or pricing data if any adjustment in contract price is subject to regulations promulgated pursuant to the provisions of Section 4.12.130 Cost of pricing data.

C. Additional Contract Clauses. The standards board shall promulgate regulations requiring the inclusion in metropolitan government construction contracts of clauses providing for appropriate remedies and covering the following subjects:

1. Liquidated damages as appropriate;

2. Specified excuses for delay or nonperformance;

3. Termination of the contract for default; and

4. Termination of the contract in whole or in part for the convenience of the metropolitan government.

D. Modification of Required Clauses. The purchasing agent may vary the clauses promulgated by the standards board under subsections A and C of this section for inclusion in any particular metropolitan government construction contract, provided that any variations are supported by a written determination that states the circumstances justifying such variation and provided that notice of any such material variation be stated in the invitation for bids or request for proposals.

E. Artifacts Found During Excavations on Public Property. All contracts awarded pursuant to this chapter shall include a clause requiring any person finding a site and/or artifact while excavating on public property to

take the necessary action to preserve the site and/or artifact and immediately notify the executive director of the metropolitan historical commission or his designee. For purposes of this subsection, the following terms shall have the meaning ascribed herein:

"Artifacts" means all relics, specimens or objects of an historical, prehistorical, archaeological or anthropological nature which may be found above or below the surface of the earth, and which have scientific or historic value as objects of antiquity, as aboriginal relics, or as archaeological specimens.

"Public property" means property that is owned or is under the control of the metropolitan government or any of its boards, commissions, or agencies.

"Site" means any location of historic or prehistoric human activity such as, but not restricted to, mounds, forts, earthworks, burial grounds, structures, villages, mines, caves, shipwrecks, and all locations which are or may be sources of paleontological remains. (Ord. BL2011-834 § 2, 2011; Ord. 92-210 § 1 (5-401), 1992)

4.20.055 Reserved.

Editor's note—Ord. BL2021-676, adopted May 4, 2021, amending Ch. 4.20 by adding Section 4.20.055 entitled "Subcontracts contracts required" was preempted by Tennessee General Assembly (SB 1150/HB 1112) Public Chapter No. 234. Therefore, Section 4.20.055 is not codified or published in the Metropolitan Code.

4.20.060 Fiscal responsibility.

Every contract modification, change order, or contract price adjustment under a construction contract with the metropolitan government shall be subject to prior written certification by the director of finance that there is a sufficient unencumbered appropriation and allotment balance to cover said obligation. (Ord. 92-210 § 1 (5-402), 1992)

4.20.065 Business tax license requirement.

Any person entering into any contractual agreement with the metropolitan government for any type of building or construction work wherein any funds of the metropolitan government are appropriated or expended for such building or construction work, other than those persons domiciled or located outside of Davidson County that are exempt from paying the minimum privilege tax pursuant to T.C.A. § 67-4-709(a)(4), shall obtain a business tax license from the Davidson County clerk as required by T.C.A. § 67-4-706 prior to commencing any work on the project. (Ord. BL2006-1207 § 1, 2006)

4.20.070 Declaration of policy—Payment of prevailing wages required.

It is declared to be the policy of the metropolitan government that not less than prevailing wage rates be paid workmen on all building and construction projects wherein any funds of the metropolitan government are expended for such purposes. (Ord. 92-210 § 1 (5-501), 1992)

4.20.080 Minimum wages requirements—Basis.

Any person entering into any contractual agreement with the metropolitan government for any type of building or construction work wherein any funds of the metropolitan government may be appropriated or expended for such building or construction work shall pay not less than the minimum wage rates for all types and occupations of such work as established under the "construction and extraction occupations" listed in the most recent Tennessee Occupational Wages Report published by the Tennessee Department of Labor and Workforce Development, Employment Security Division. (Ord. BL2014-991 § 1, 2015; Ord. 92-210 § 1 (5-502), 1992)

4.20.090 Prevailing wages—Rate schedules to be specification for work—Posting.

A. The purchasing agent shall ensure that solicitations for construction of any public work or improvement shall reference the Tennessee Occupational Wage Report published by the Tennessee Department of Labor and Workforce Development, Employment Security Division. The state's website shall be identified in the solicitation and made a part of any contract for the construction of any public works project or improvement by reference. The contractor shall be responsible for compensating its employees and holding its subcontractors accountable for the same. The current Tennessee Occupational Wage Report listing those services performed shall be posted on the main employee bulletin board or other conspicuous place of each job site by the contractor.

B. In addition to the posting of the schedule of wages, the name, mailing address and telephone number of the purchasing agent of metropolitan government shall be posted in the same manner with a statement that any person may report any violations of prevailing provisions to such office. Each employer that is subject to the provisions of this section shall provide to each employee, with the first payroll check, a written document which includes the contract number of the project, the job identification or classification of the employee

and the prevailing wage rate for such job. Each employer shall maintain a written acknowledgment of the receipt by each employee of such document with its payroll records. (Ord. BL2014-991 § 2, 2015; Ord. 97-723 § 1, 1997; Ord. 92-210 § 1 (5-503), 1992)

4.20.100 Payroll records—Contractor responsibility.*

A. Any person who may enter into any contractual agreement with the metropolitan government or any agency thereof for any public works or improvements shall, upon request, furnish the purchasing agent or the agency under whose jurisdiction such work is to be performed certified copies of payroll records, including employees' names, employees' addresses, hours worked, and rates paid, but excluding social security numbers which shall be deleted or redacted, and shall maintain and preserve such payroll records for the previous three hundred sixty-five days on an ongoing basis. Such records shall be open for inspection by the agency under whose jurisdiction the contract is to be performed. Contractors having more than one hundred total employees shall supply the requested documents within five working days of receipt of the request, and Contractors having fewer than one hundred total employees shall supply such documents within thirty days of receipt of the request. The purchasing agent or his designee may periodically examine the records required to be kept under this section.

B. The purchasing agent is authorized to enter into a contract or contracts with qualified, independent firms to perform the necessary review and investigation to determine compliance with the provisions of this chapter as requested by the purchasing agent. This subsection is in no way intended to subject the metropolitan government to any provision of the federal Davis-Bacon Act.

C. Public access to inspect and request reproductions of certified payroll records shall conform to relevant provisions of the Tennessee Public Records Act, Tennessee Code Annotated §§ 10-7-502, 503, 504, and 505. All such records made available to the public shall exclude Social Security numbers. Further redaction of information shall be limited to those exemptions specifically enumerated in the Tennessee Open Records Act or otherwise exempted by applicable law.

D. All public requests to inspect certified payrolls must be fulfilled by the purchasing agent, or by the agency under whose jurisdiction such records were obtained, in accordance with the established policies and procedures of the metropolitan government pertaining to the inspection and copying of public records under the Tennessee Public Records Act. (Amdt. 1 to Ord. BL2014-991 § 3, 2015; Ord. BL2014-991 § 3, 2015; Amdt. 1 to Ord. BL2012-282 § 1, 2012; Ord. BL2012-282 § 1, 2012; Ord. 97-723 §§ 2, 3, 1997; Ord. 92-210 § 1 (5-504), 1992)

4.20.105 Utilization of apprentice, training, and certification programs—Employer information.**

Any person who may enter into any contractual agreement with the metropolitan government or agency thereof for any public works or improvements shall furnish the purchasing agent or the agency under whose jurisdiction such work is to be performed with the following information:

A. The extent of the employer's utilization of federally registered apprenticeship programs;

B. The extent of the employer's utilization of MC3 and MCCR training curriculum;

C. Number of OSHA 10-certified and OSHA 30-certified individuals on project;

D. Number of OSHA 100-certified individuals on project;

E. Percentage of employees on project covered by health benefits offered by the employer; and

F. Percentage of employees on project covered by workers' compensation by employer. (Ord. BL2019-1731 § 3, 2019)

4.20.110 Violation of Title 4 provisions—Penalty.

Each day that each employee is not paid in accordance with the provisions of this chapter shall constitute a separate offense. Any contractor found to have violated any provision hereof shall be disqualified from contracting with the government for a period of six months and, upon a second conviction shall be disqualified for a period of one year, and a third conviction, for a period of three years. Furthermore, the particular agency of the metropolitan government which awarded the contract may advertise the work and relet the contract in the same

*__Editor's note—__Ord. BL2021-676, adopted May 4, 2021, amending Section 4.20.100 was preempted by Tennessee General Assembly (SB 1150/HB 1112) Public Chapter No. 234. Therefore, the amendments to Section 4.20.100 preempted by Public Chapter No. 234 are not codified or published in the Metropolitan Code.

**__Editor's note—__Ord. BL2021-676, adopted May 4, 2021, amending Section 4.20.105 was preempted by Tennessee General Assembly (SB 1150/HB 1112) Public Chapter No. 234. Therefore, the amendments to Section 4.20.105 preempted by Public Chapter No. 234 are not codified or published in the Metropolitan Code.

manner as the original letting. (Ord. 95-1329 § 4, 1995; Ord. 92-210 § 1 (5-505), 1992)

4.20.120 Effect of federal action on wage determinations.

A. The prevailing wage determination decisions shall be the only matter decided by the United States Department of Labor effecting the prevailing wages established under this title for building and construction projects of the metropolitan government. No action by the President of the United States suspending application of the Davis-Bacon Act to projects of the United States Government shall be interpreted to suspend any of the operations of this title.

B. The metropolitan government, having only adopted the prevailing wage determination, shall in no way be subject to any provision of the Davis-Bacon Act. (Ord. 92-210 § 1 (5-506), 1992)

4.20.130 Contract and compliance board.

A. There is established a contract and compliance board (the "board") related to construction contracts where the metropolitan government is a party with the following powers and duties to:

1. Meet, evaluate, and monitor compliance with existing construction contracts related to construction activities on projects by the metropolitan government;

2. Review construction sites if such review is in connection with the evaluation of existing construction contracts;

3. Provide recommendations for the scope of safety plans for construction project procurement such as (a) types and size of projects, (b) whether safety plans should be required as part of the procurement process, and (c) other relevant issues related to safety plans. These suggestions should be submitted to the purchasing agent and the metropolitan council no later than July 1, 2025. This deadline may be extended by a resolution of the metropolitan council;

4. Provide recommendations related to contractor payment application requirements, including whether such requirements should be required in the metropolitan code of laws. These recommendations should be submitted to the purchasing agent and the metropolitan council no later than July 1, 2025. This deadline may be extended by a resolution of the metropolitan council;

5. Study best practices on public construction worksites and provide recommendations concerning improvements in worksite safety on Metropolitan Government construction worksites; and

6. Create subcommittees related the performance of these duties, including subcommittees comprised of representatives of relevant metropolitan departments.

7. Confer with metropolitan government construction safety specialists employed pursuant to this section in connection with any accident reported to such specialists and measures taken to prevent the occurrence of similar accidents.

8. Make recommendations to the Department of Finance for policies and practices regarding construction contracts; and

9. Accept and investigate complaints related to existing construction contracts wherein the metropolitan government is a party and related to the relevant construction sites.

B. The mayor, in consultation with the board, shall appoint an executive director of the board. The chair of the board, at the direction of the board, may be present at interviews for the hiring of an executive director.

C. The executive director may employ staff, including construction safety specialists, necessary to carry out the powers and duties of the board. All staff shall be subject to the civil service provisions of the metropolitan charter. The construction safety specialists shall be qualified by education, training, and experience in the field of construction worksite safety. Such construction safety specialists shall provide advice and assistance to all departments and agencies of the Metropolitan Government on recommended construction safety practices. The executive director, upon approval of the board, may hire consultants or experts in the construction industry to assist with the work of the board.

D. The board shall consist of seven voting members and one non-voting member who each serve a term of two years. The membership shall be as follows:

1. Two members shall be appointed by the mayor and confirmed by the metropolitan council. At least one member appointed by the mayor shall have experience in the enforcement of occupational safety and health standards and construction labor and material payment protocols;

2. One member shall be a representative of labor appointed by the mayor and confirmed by the council;

3. One member shall be a contractor licensed by the State of Tennessee, in good standing, appointed by the mayor and confirmed by the council;

4. One member shall be the purchasing agent, or their designee;

5. Two members shall be elected by a majority vote of the whole membership of the metropolitan council;

6. One member shall be a council member who shall serve in a nonvoting capacity. This council member shall be elected by the metropolitan council. In no event shall the term of the council member extend beyond the council term in which they were elected. This member shall not count toward quorum for the board.

E. To the extent a complaint submitted to the board is for an alleged violation of the terms of the contract, complaints shall be investigated by the board and its staff. Complaints for an alleged violation of federal or state law, including health and safety violations, shall be referred to the appropriate federal or state authority.

F. The board shall submit to the metropolitan council annual reports compiling relevant anonymized accident and injury safety data from metropolitan government construction projects, utilizing data received by construction safety specialists.

G. Nothing in this section shall be construed to conflict with the Metropolitan Charter or other provisions of the Metropolitan Code of Laws governing the authority of the purchasing agent. (Ord. BL2024-375 § 1, 2024)

Editor's note—Prior to enactment by Ord. BL2024-375, Ord. BL2021-676, adopted May 4, 2021, amending Ch. 4.20 by adding Section 4.20.130 entitled "Sanitation measures" was preempted by Tennessee General Assembly (SB 1150/HB 1112) Public Chapter No. 234. Therefore, Section 4.20.130 is not codified or published in the Metropolitan Code.

4.20.140 Reserved.

Editor's note—Ord. BL2021-676, adopted May 4, 2021, amending Ch. 4.20 by adding Section 4.20.140 entitled "Temporary labor" was preempted by Tennessee General Assembly (SB 1150/HB 1112) Public Chapter No. 234. Therefore, Section 4.20.140 is not codified or published in the Metropolitan Code.

Chapter 4.24

MODIFICATION AND TERMINATION OF CONTRACTS FOR SUPPLIES AND SERVICES

Sections:

4.24.010	**Contract clauses and their administration.**
4.24.020	**Contract modification and change orders.**

4.24.010 Contract clauses and their administration.

A. Contract Clauses. The standards board may promulgate regulations permitting or requiring the inclusion of clauses providing for adjustments in prices, time of performance or other contract provisions as appropriate covering the following subjects:

1. The unilateral right of the metropolitan government to order in writing:

a. Changes in the work within the scope of the contract; and

b. Temporary stopping of the work or delaying performance; and

2. Variations occurring between estimated quantities of work in a contract and actual quantities.

B. Price Adjustments.

1. Adjustments in price pursuant to clauses promulgated under subsection A of this section shall be computed in one or more of the following ways:

a. By agreement on a fixed price adjustment before commencement of the pertinent performance or as soon thereafter as practicable;

b. By unit price specified in the contract or subsequently agreed upon;

c. By the cost attributable to the events or situations under such clauses with adjustment of profit or fee, all as specified in the contract or subsequently agreed upon;

d. In such other manner as the contracting parties may mutually agree; or

e. In the absence of agreement by the parties, by a unilateral determination by the metropolitan government of the cost attributable to the events or situations under such clauses with adjustment of profit or fee, all as computed by the metropolitan government in accordance with applicable sections of the regulations promulgated by the standards board.

C. Additional Contract Clauses. The standards board may promulgate regulations including, but not limited to, regulations permitting or requiring the inclusion in metropolitan government contracts of clauses providing for appropriate remedies and covering the following subjects:

1. Liquidated damages as appropriate;
2. Specified excuses for delay or nonperformance;
3. Termination of the contract for default; and
4. Termination of the contract in whole or in part for the convenience of the metropolitan government.

D. Modification of Clauses. The purchasing agent may vary the clauses promulgated by the standards board under subsections A and C of this section for inclusion in any particular metropolitan government contract; provided that any variations are supported by a written determination that states the circumstances justifying such variation and provided that notice of any such material variation be stated in the invitation for bids or request for proposals. (Ord. 92-210 § 1 (6-101), 1992)

4.24.020 Contract modification and change orders.

A. Approval by purchasing agent. Before any change, revision or modification shall be made in any contract requiring the expenditure of money or the relinquishment of rights or privileges by the metropolitan government, such change, revision or alteration shall be approved by the purchasing agent. The purchasing agent shall disapprove any change, revision or alteration of such contract if, in his opinion, the best interests of the metropolitan government require that a new procurement be initiated for the items included in the proposed change or modification. The mayor shall make the final determination if the director of any affected departments, commission, board or agency objects to the decision of the purchasing agent.

B. Approval by Mayor and Director of Law. Any changes, revisions or alterations of contracts, deeds, leases or other instruments in writing in which the metropolitan government is concerned shall be approved by the department of law, as provided by Section 8.602(e) of the Metropolitan Charter, and shall be signed by the mayor.

C. Availability of Funds. Where any change, revision or alteration of a contract in which the metropolitan government is concerned requires an expenditure of money, the director of finance or his designee must approve the change. Funds must be available or obtainable by means authorized in the Charter or in ordinances. (Ord. 92-210 § 1 (6-102), 1992)

Chapter 4.28

DISCRIMINATION IN EMPLOYMENT

Sections:

4.28.010	**Equal opportunity requirements.**
4.28.020	**Affidavit of compliance—Contract requirements.**
4.28.030	**Violations—Penalty.**

4.28.010 Equal opportunity requirements.

A. It is declared to be the policy of the metropolitan government that any person contracting for building and construction projects or furnishing supplies or services to the metropolitan government, and to which any funds of the metropolitan government are expended, shall establish equal employment opportunities for all individuals so that no individual shall be excluded from employment by such person because of race, creed, color, national origin, age, sex, gender identity, or sexual orientation, and to ensure compliance with all applicable laws concerning the employment of individuals with disabilities.

B. Any person so contracting for building and construction projects, or furnishing supplies or services to the metropolitan government, wherein any funds of the metropolitan government may be appropriated or expended to such person, shall not subscribe to any personnel policy which permits or allows the promotion, demotion, employment, dismissal or laying off of any individual due to his race, creed, color, national origin, age, sex, gender identity, or sexual orientation, or which is in violation of applicable laws concerning the employment of individuals with disabilities.

C. It is further declared to be the policy of the metropolitan government that any person entering into any agreement for the use of any metropolitan government property or facility with a lease term of greater than six months shall establish equal employment opportunities for all individuals so that no individual shall be excluded from employment, discharged, demoted, or refused a promotion by such person because of race, creed, color, national origin, age, sex, gender identity, or sexual orientation, and to ensure compliance with all applicable laws concerning the employment of individuals with disabilities.

D. The foregoing provisions of this section prohibiting employment discrimination on the basis of sexual orientation or gender identity shall not apply to the following:

1. Any person employing fewer than fifteen individuals;

2. Religious entities, organizations, or institutions where employment discrimination on the basis of sexual orientation or gender identity is in furtherance of the organization's religious mission or beliefs, as such prohibition is not intended to interfere with the free exercise of religion or the freedom of expressive association guaranteed by the U.S. Constitution; or

3. Any group or organization where the application of such provisions would significantly burden the expression of the group or organization, as such prohibition is not intended to interfere with the freedom of expressive association guaranteed by the U.S. Constitution. (Amdt. 1 to Ord. BL2011-838 § 1, 2011; Ord. BL2011-838 § 1, 2011; Ord. 92-416 § 1(a, b), 1992; Ord. 92-210 § 1 (7-101), 1992)

4.28.020 Affidavit of compliance—Contract requirements.

A. The purchasing agent of the metropolitan government shall include in all bid specifications or invitations to bid a provision to the effect that no contract shall be entered into for building and construction projects or supplies or services unless the successful bidder submits an affidavit to the metropolitan government stating that by his employment policy, standards and practices he does not subscribe to any personnel policy which permits or allows for the promotion, demotion, employment, dismissal or laying off of any individual due to race, creed, color, national origin, age, sex, gender identity, or sexual orientation, and that he is not in violation of and will not violate any applicable laws concerning the employment of individuals with disabilities.

B. The purchasing agent, or other agency of the metropolitan government under whose jurisdiction such work is to be performed, shall include in the specifications to bidders or in the invitations to bid, a clause prohibiting the successful bidder from discriminating against any individual due to his/her race, creed, color, national origin, age, sex, gender identity, or sexual orientation, and from violating applicable laws concerning the employment of individuals with disabilities.

C. The foregoing requirements of this section pertaining to employment discrimination on the basis of sexual orientation or gender identity shall not apply to the following:

1. Any person employing fewer than fifteen individuals;

2. Religious entities, organizations, or institutions where employment discrimination on the basis of sexual orientation or gender identity is in furtherance of the organization's religious mission or beliefs, as such prohibition is not intended to interfere with the free exercise of religion guaranteed by the U.S. Constitution; or

3. Any group or organization where the application of such provisions would significantly burden the expression of the group or organization, as such prohibition is not intended to interfere with the freedom of expressive association guaranteed by the U.S. Constitution. (Amdt. 1 to Ord. BL2011-838 § 1, 2011; Ord. BL2011-838 § 1, 2011; Ord. 92-416 § 1(c, d), 1992; Ord. 92-210 § 1 (7-102), 1992)

4.28.030 Violations—Penalty.

Any contractor who violates the provisions of this chapter is subject to debarment or suspension pursuant to Section 4.36.020, Authority to debar or suspend of this code in addition to any contractual remedies available to the metropolitan government. (Ord. 92-210 § (7-103), 1992)

Chapter 4.32

SUPPLY MANAGEMENT

Sections:

4.32.010 **Inventory.**
4.32.020 **Disposal of surplus, obsolete or unused supplies or equipment.**
4.32.030 **Declaration of surplus property authorized when.**
4.32.040 **Notice of surplus property—Availability to metropolitan agencies.**
4.32.050 **Sale of surplus property or supplies—Authorized when.**
4.32.060 **Sale of property—Rules and regulations.**

4.32.010 Inventory.

The director of public property shall maintain an inventory of public property, supplies and equipment. He shall exercise general supervision and control over all inventories of property, supplies, and equipment, including requiring inventory control procedures to be used by using agencies and specifying information on reports to be filed by using agencies. (Ord. 92-210 § 1 (8-101), 1992)

4.32.020 Disposal of surplus, obsolete or unused supplies or equipment.

The purchasing agent and the director of public property administration shall establish, by rules and regulations, the procedures for determining supplies, materials, and equipment to be surplus, obsolete or unused, and by which their disposition shall be effected. Such rules and regulations shall be subject to the approval of the standards board and the mayor. (Ord. 92-210 § 1 (8-102), 1992)

4.32.030 Declaration of surplus property authorized when.

Whenever the director or other chief administrative officer of any department or agency, or when any board or commission of the metropolitan government determines that personal property of the metropolitan government in the custody of or used by such department, commission, board or agency is no longer needed or suited for its purposes, the board or commission, by resolution, or the director of a department or head of an agency, shall declare such personal property surplus, and shall transfer it to the custody of the director of public property administration. (Ord. 92-210 § 1 (8-103), 1992)

4.32.040 Notice of surplus property—Availability to metropolitan agencies.

The director of public property administration, in accordance with the procedures established by regulations, shall make all surplus personal property available to the departments, boards and commissions of the metropolitan government, and shall effect the transfer of such property to the department or other agency requesting its use. (Ord. 92-210 § 1 (8-104), 1992)

4.32.050 Sale of surplus property or supplies—Authorized when.

When surplus personal property or supplies, other than school property, is not required by any department or other agency of the metropolitan government, the director of public property administration is authorized to sell such property or supplies, and the proceeds shall be deposited as directed by the director of finance. When, in the judgment of the metropolitan board of public education, any property held by it is no longer suited or needed for school purposes, the board shall, by resolution, direct the property be sold, and the proceeds from such sale shall be credited to the unappropriated school fund of the metropolitan government. (Ord. 2002-1232 § 3 (part), 2002; Ord. 92-210 § 1 (8-105), 1992)

4.32.060 Sale of property—Rules and regulations.

Surplus personal property authorized for sale under this chapter shall be sold in accordance with regulations. (Ord. 98-1386 § 1, 1998; Ord. 92-210 § 1 (8-106), 1992)

Chapter 4.36

LEGAL AND CONTRACTUAL REMEDIES

Sections:

4.36.010	**Authority to resolve protested solicitations and awards.**
4.36.020	**Authority to debar or suspend.**
4.36.030	**Authority to resolve contract and breach of contract controversies.**
4.36.040	**Applicability of this part.**
4.36.050	**Remedies prior to an award of contract.**
4.36.060	**Remedies after an award.**
4.36.070	**Creation of the procurement appeals board.**
4.36.080	**Procurement appeals board—Rules of procedure.**
4.36.090	**Procurement appeals board—Issuance of decisions.**
4.36.100	**Procurement appeals board—Jurisdiction.**
4.36.110	**Protest of solicitations or awards.**
4.36.120	**Suspension or debarment proceedings.**

4.36.010 Authority to resolve protested solicitations and awards.

A. Right to Protest. Any actual or prospective bidder, offeror or contractor who is aggrieved in connection with the solicitation or award of a contract may protest to the purchasing agent. The protest shall be submitted in writing within ten days after such aggrieved person knows or should have known of the facts giving rise thereto.

B. Authority to resolve protests. The purchasing agent shall have the authority to settle and resolve a protest of an actual or prospective aggrieved bidder, offeror or contractor concerning the solicitation or award of a contract. This authority shall be exercised in accordance with regulations promulgated by the standards board.

C. Decision. If the protest is not resolved by mutual agreement, the purchasing agent shall promptly issue a decision in writing. The decision shall:

1. State the reason for the action taken; and

2. Inform the protestant of its right to administrative review as provided in this chapter.

D. Notice of Decision. A copy of the decision under subsection C of the section shall be mailed or otherwise furnished immediately to the protestant and any other interested party.

E. Finality. A decision under subsection C of this section shall be final and conclusive, unless any person adversely affected by the decision appeals administratively to the procurement appeals board in accordance with Section 4.36.110, protest of solicitations or awards; or

F. Stay of Procurements During Protests. In the event a timely protest under subsection A of this section or under Section 4.36.100, jurisdiction of procurement appeals board, the metropolitan government shall not proceed further with the solicitation of or with the award of the contract until the purchasing agent, after consultation with the head of the using agency, makes a written determination that the award of the contract without delay is necessary to protect substantial interests of the metropolitan government. (Ord. 92-210 § 1 (9-101), 1992)

4.36.020 Authority to debar or suspend.

A. Authority. After reasonable notice to the person involved and reasonable opportunity for that person to be heard, the Purchasing Agent, after consultation with the Using Agency and the Director of Law, shall have the authority to debar a person for cause from consideration for award of contracts. The debarment shall not be for a period of more than three years. The Purchasing Agent, after consultation with the Using Agency and the Director of Law, shall have authority to suspend a person from consideration for award of contracts for up to twelve months. The authority to debar or suspend shall be exercised in accordance with regulations promulgated by the standards board.

If required by Tenn. Code Annotated, Title 50, Chapter 3, Part 1, the Purchasing Agent shall only restrict a prime contractor or remote contractor from bidding, proposing, or accepting a contract or furnishing labor or material for an improvement to real property based upon a final finding or order that the prime contractor or remote contractor committed a willful violation of federal or state law.

B. Causes for Debarment or Suspension. The causes for debarment or suspension include, but are not limited to, the following:

1. Conviction of commission of a criminal offense as incident to obtaining or attempting to obtain a public or private contract or subcontract, or in the performance of such contract or subcontract;

2. Conviction under state or federal statutes of embezzlement, theft, forgery, bribery, falsification or destruction of records, receiving stolen property or any

other offense indicating a lack of business integrity or business honesty which currently, seriously, and directly affects responsibility as a metropolitan government contractor;

3. Conviction under state or federal antitrust statutes arising out of the submission of bids or proposals;

4. Violation of contract provisions, such as willful failure to perform in accordance with the terms of one or more contracts, a documented past history of failure to perform, unsatisfactory performance of one or more contracts, or a failure to cooperate in correcting performance issues or documenting billing during a contract;

5. Violation of the ethical standards set forth in Chapter 4.48, ethics in public contracting; or

6. Engaging in an anticompetitive practice as defined in Section 4.12.010, or

7. Any other cause the purchasing agent, after consultation with the using agency and the director of law, determines to be so serious and compelling as to affect responsibility as a metropolitan government contractor, including but not limited to suspension or debarment by another governmental entity.

C. Decision. The purchasing agent shall issue a written decision to debar or suspend. The decision shall:

1. State the reasons for the action taken; and

2. Inform the debarred or suspended person involved of its rights to administrative review as provided in this chapter.

D. Notice of Decision. A copy of the decision under subsection C of this section shall be mailed or otherwise furnished immediately to the debarred or suspended person and any other interested party.

E. Finality of Decision. A decision under subsection C of this section shall be final and conclusive, unless the debarred or suspended person appeals administratively to the procurement appeals board in accordance with Section 4.36.120, suspension or debarment proceedings.

F. Public List. When a person is suspended or debarred under this section, their name shall be added to a publicly available list of debarred or suspended persons. This list shall be available online and be updated whenever a person is debarred, suspended, or no longer subject to debarment or suspension. (Ord. BL2025-1065 § 2, 2025; Ord. BL2021-738 § 2, 2021; Ord. BL2020-423 § 1, 2020; Ord. 92-210 § 1 (9-102), 1992)

4.36.030 Authority to resolve contract and breach of contract controversies.

A. Applicability. This section applies to controversies between the metropolitan government and a contractor and which arise under, or by virtue of, a contract between them. This includes without limitation controversies based upon breach of contract, mistake, misrepresentation or other cause for contract modification or recision.

B. Authority. The purchasing agent is authorized, prior to commencement of an action in court concerning the controversy, to settle and resolve a controversy described in subsection A of this section. This authority shall be exercised in accordance with regulations promulgated by the standards board.

C. Decision. If such a controversy is not resolved by mutual agreement, the purchasing agent shall promptly issue a decision in writing. The decision shall state the reason for the action taken.

D. Notice of Decision. A copy of the decision under subsection C of this section shall be mailed or otherwise furnished immediately to the contractor.

E. Failure to Render Timely Decision. If the purchasing agent does not issue the written decision required under subsection C of this section within one hundred and twenty days after a written request for a final decision or within such longer period as may be agreed upon by the parties, the contractor may proceed as if an adverse decision had been received. (Ord. 92-210 § 1 (9-103), 1992)

4.36.040 Applicability of Sections 4.36.040 through 4.36.060.

The provisions of this Sections 4.36.040 through 4.36.060 apply where it is determined administratively, or upon administrative review, that a solicitation or award of a contract is in violation of law. (Ord. 92-210 § 1 (9-201), 1992)

4.36.050 Remedies prior to an award of contract.

If prior to award it is determined that a solicitation or proposed award of a contract is in violation of law, the solicitation or proposed award shall be:

A. Canceled; or

B. Revised to comply with the law. (Ord. 92-210 § 1 (9-202), 1992)

4.36.060 Remedies after an award of contract.

If after an award it is determined that a solicitation or award of a contract is in violation of law, then:

A. If the person awarded the contract has not acted fraudulently or in bad faith:

1. The contract may be ratified and affirmed, provided it is determined that doing so is in the best interest of the metropolitan government; or

2. The contract may be terminated and the person awarded the contract shall be compensated for the actual expenses reasonably incurred under the contract prior to termination;

B. If the person awarded the contract has acted fraudulently or in bad faith:

1. The contract may be declared null and void; or

2. The contract may be ratified and affirmed if such action is in the best interests of the metropolitan government, without prejudice to the metropolitan government's rights to such damages as may be appropriate. (Ord. 92-210 § 1 (9-203), 1992)

4.36.070 Procurement appeals board—Establishment and membership.

There is hereby established a procurement appeals board to be composed of a chairperson and at least two other members, but not more than five members. The chairperson and members of the board shall be appointed by the mayor. The members of the Board may be directors, department heads, or other officials of metropolitan government in similar positions as determined by the mayor. The mayor, by executive order, shall determine the size of the Board and the qualifications and terms of members, if any. (Ord. 92-210 § 1 (9-301), 1992)

4.36.080 Procurement appeals board—Rules of procedure.

The procurement appeals board shall adopt rules of procedure of which, to the fullest extent possible, will provide for the expeditious resolution of controversies. (Ord. 92-210 § 1 (9-301), 1992)

4.36.090 Procurement appeals board—Issuance of decisions.

Acting by one or more of its members, the procurement appeals board shall issue a decision in writing or take other appropriate action on each appeal submitted. A copy of any decision shall be provided to all parties and the purchasing agent. (Ord. 92-210 § 1 (9-303), 1992)

4.36.100 Procurement appeals board—Jurisdiction.

The Board shall have jurisdiction to review and determine de novo any appeal by an aggrieved party from a determination by the purchasing agent or a designee which is authorized by:

A. Section 4.36.010, authority to resolve protested solicitations and awards; and

B. Section 4.36.020, authority to debar or suspend. (Ord. 92-210 § 1 (9-304), 1992)

4.36.110 Protest of solicitations or awards.

A. Scope. This section applies to an appeal addressed to the board of a decision under Section .36.020(C), authority to resolve protested solicitations and awards, decision.

B. Time Limitations on Filing a Protest or an Appeal. For an appeal under this section, the aggrieved person shall file an appeal within seven days of receipt of a decision under Section 4.36.010(C), authority to resolve protested solicitations and awards, decision.

C. Decision. On any appeal under this section, the board shall promptly decide whether the solicitation or award was in accordance with the Constitution, statutes, this code, regulations, and the terms and conditions of the solicitation. (Ord. 92-210 § 1 (9-305), 1992)

4.36.120 Suspension or debarment proceedings.

A. Scope. This section applies to a review by the procurement appeals board of a decision under Section 4.36.020 authority to debar or suspend.

B. Time Limitation on Filing an Appeal. The aggrieved person shall file its appeal with the board within thirty days of the receipt of a decision under Section 4.36.020(C), authority to debar or suspend, Decision.

C. Decision. The board shall promptly decide whether, or the extent to which, the debarment or suspension was in accordance with the Constitution, statutes, this code, regulations, and the best interest of the metropolitan government, and was fair. The board may order the reinstatement of any person previously suspended or debarred. (Ord. 92-210 § 1 (9-306), 1992)

Chapter 4.40

SPECIFIC PROCEDURES

Sections:

4.40.010	**Availability of funds prerequisite to purchasing.**
4.40.020	**Written requisition required.**
4.40.030	**Surety bonds and insurance.**
4.40.040	**Regulations concerning use of recycled materials.**
4.40.050	**Recycled paper.**
4.40.060	**Use of employees who are not legal residents of the United States prohibited.**

4.40.010 Availability of funds prerequisite to purchasing.

No purchase order shall be issued or contract executed, nor shall any other agreements purporting to obligate the metropolitan government be entered into, without the written certificate of the director of finance, or such other of his personnel as he may designate, that there is a sufficient unencumbered appropriation and allotment balance to cover the obligation. (Ord. 92-210 § 1 (10-101), 1992)

4.40.020 Written requisition required.

All purchases of supplies, services, and construction shall be pursuant to a written requisition from the head of the office, department or agency whose appropriation will be charged therewith. (Ord. 92-210 § 1 (10-102), 1992)

4.40.030 Surety bonds and insurance.

The purchasing agent shall procure surety bonds and other types of bonds and insurance through sealed competitive bidding. The metropolitan council shall approve the plan for fire and extended coverage insurance by resolution. The resolution shall also include the name of the low bidder or bidders for the insurance. (Ord. 92-210 § 1 (10-103), 1992)

4.40.040 Regulations concerning use of recycled materials.

The standards board is authorized to adopt regulations encouraging or requiring the purchase of recycled products. Such regulations may identify specific types or classes of purchases where recycled products are readily available. (Ord. 92-210 § 1 (10-201), 1992)

4.40.050 Recycled paper.

A. Declaration of policy. It is declared to be the policy of the metropolitan government that the metropolitan government and all its agencies use recycled paper to the extent feasible and possible.

B. Implementation by Purchasing Agent—Goals. The purchasing agent shall implement a policy, effective as of July 1, 2026, of purchasing paper and paper products that are produced or manufactured from recycled paper for the use of the various agencies and departments of metropolitan government. "Recycled paper" means all paper and paper products that contain a minimum of thirty percent post-consumer waste but meet the government's performance and other requirements. This policy recognizes that the percentage of recovered materials used in a particular type of paper or product category can vary significantly. (Amdt. 1 to Ord. BL2025-1069 § 1, 2025; Ord. BL2025-1069 § 1, 2025; Ord. 2002-1232 § 3 (part), 2002; Amdt. 3 to Ord. 92-210, 4/7/92; Ord. 92-210 § 1 (10-202), 1992)

4.40.060 Use of employees who are not legal residents of the United States prohibited.

A. It is declared to be the policy of the metropolitan government that any person, and subcontractors of such persons, contracting for building and construction projects or furnishing supplies or services to the metropolitan government, and to which any funds of the metropolitan government are expended, shall be prohibited from employing any person or having any employees who are not legal residents of the United States.

B. The purchasing agent, or other agency of the metropolitan government under whose jurisdiction such work is to be performed, shall include in the specifications to bidders or in the invitations to bid, a clause prohibiting the successful bidder, including any subcontract of such successful bidder, from permitting the employment of any person or having any employees who are not legal residents of the United States.

C. Any contractor who knowingly violates the provisions of this section is subject to debarment or suspension pursuant to Section 4.36.020. Authority to debar or suspend shall be in addition to any contractual remedies available to the metropolitan government. (Amdt. 1 to Ord. BL2006-1136 § 1, 2006; Ord. BL2006-1136 § 1, 2006)

Chapter 4.44

ASSISTANCE TO SMALL, DISADVANTAGED, AND SERVICE-DISABLED VETERAN OWNED BUSINESSES*

Sections:

4.44.010	**Definitions of terms used in this article.**
4.44.020	**Statement of policy and its implementation.**
4.44.030	**Mandatory duties of the purchasing agent.**
4.44.040	**Discretionary duties of the purchasing agent.**
4.44.050	**Report to the standards board and the council.**
4.44.060	**Compliance with federal requirements.**

4.44.010 Definitions of terms used in this article.

The standards board shall promulgate regulations establishing detailed definitions of the following terms using, in addition to the criteria set forth in this section, such other criteria as it may deem desirable, including the number of employees, the dollar volume of business, and the comparative size with other businesses in the same or a similar field. The regulations may distinguish between industries to the extent necessary to reflect the differing characteristics of each particular industry. As used in this chapter:

"Disadvantaged business" means a small business which is owned or controlled by a majority of persons, not limited to members of minority groups, who have been deprived of the opportunity to develop and maintain a competitive position in the economy because of social disadvantages or disability.

"Service-disabled veteran" means any person who served honorably on active duty in the Armed Forces of the United States with at least a twenty percent disability that is service-connected meaning that such disability was incurred or aggravated in the line of duty in the active military, naval, or air service.

"Service-disabled veteran owned business" means a business that is a continuing, independent, for profit business located in Davidson County, Tennessee that performs a commercially useful function, and

1. Is at least fifty-one percent owned and controlled by one or more service-disabled owned veterans;

2. In the case of a business solely owned by one service-disabled veteran and such person's spouse, is at least fifty percent owned and controlled by the service-disabled veteran; or

3. In the case of any publicly owned business, at least fifty-one percent of the stock of which is owned and controlled by one or more service-disabled veteran and whose management and daily business operations are under the control of one or more service-disabled veteran.

"Small business" means a United States business which is independently owned and operated and which is not dominant in its field of operation or an affiliate or subsidiary of a business dominant in its field of operation. (Ord. BL2011-33 § 2, 2011; Ord. 92-416 § 2, 1992; Ord. 92-210 § 1 (11-101), 1992)

4.44.020 Statement of policy and its implementation.

A. Statement of Policy. It shall be the policy of the metropolitan government to assist small, disadvantaged, and service-disabled veteran owned businesses in learning how to do business with the metropolitan government. It is further the policy of metropolitan government that a fair proportion of government purchases be made from small, disadvantaged, and service-disabled veteran owned businesses. The standards board shall annually determine the amount of the fair proportion to be purchased from small and service-disabled veteran owned businesses; provided, however, that said proportion for fiscal year 1992-93 shall be fifteen percent.

B. Implementation. The purchasing agent shall implement the policy set forth in subsection A of this section in accordance with regulations promulgated by the standards board under this chapter. The standards board may develop procedures for certification for eligibility for participation in this program and procedures for decertification. The board may further develop procedures to assure that a fair proportion of purchases are made from small and service-disabled veteran owned businesses, including but not limited to identification of types of purchases or contracts to be bid among certified small and service-disabled veteran owned businesses and the establishment of preferences. (Amdt. 1 to Ord. BL2011-33 §§ 3, 4, 2011; Ord. BL2011-33 §§ 3, 4, 2011; Ord. 92-210 § 1 (11-201), 1992)

4.44.030 Mandatory duties of the purchasing agent.

A. Assistance Within Metropolitan Government Agencies. Where feasible, the purchasing agent shall provide appropriate staff who shall be responsible to the purchasing agent and who shall serve within designated metro-

*__Editor's note—__Ord. BL2011-33, § 1, adopted Dec. 6, 2011, amended the title of ch. 4.44 to read as herein set out. Formerly, ch. 4.44 was entitled "Assistance to Small and Disadvantaged Businesses."

politan government agencies to assist metropolitan government small, disadvantaged, and service-disabled veteran owned businesses in learning how to do business with the metropolitan government.

B. Special Publications. The purchasing agent will give special publicity to procurement procedures and issue special publications designed to assist small, disadvantaged, and service-disabled veteran owned businesses in learning how to do business with the metropolitan government.

C. Source Lists. The purchasing agent shall compile, maintain and make available source lists of small, disadvantaged, and service-disabled veteran owned businesses for the purpose of encouraging procurement from small, disadvantaged, and service-disabled veteran owned businesses.

D. Solicitation Mailing Lists. To the extent deemed by such officer to be appropriate and as may be required by regulation, the purchasing agent shall include small, disadvantaged, and service-disabled veteran owned businesses on solicitation mailing lists.

E. Solicitation of Small, Disadvantaged, and Service-Disabled Veteran Owned Businesses. The purchasing agent shall assure that small, disadvantaged, and service-disabled veteran owned businesses are solicited on each procurement under one thousand dollars and on each other procurement for which such businesses may be suited.

F. Training Programs. The purchasing agent shall develop special training programs to be conducted by the metropolitan government to assist small, disadvantaged, and service-disabled veteran owned businesses in learning how to do business with the metropolitan government. (Amdt. 1 to Ord. BL2011-33 § 3, 2011; Ord. BL2011-33 § 3, 2011; Ord. 92-210 § 1 (11-202), 1992)

4.44.040 Discretionary duties of the purchasing agent.

A. Bonding. Notwithstanding other provisions of this the purchasing agent may reduce the level or change the types of bonding normally required or accept alternative forms of security to the extent reasonably necessary to encourage procurement from small, disadvantaged, and service-disabled veteran owned businesses.

B. Progress Payments. The purchasing agent may make such special provisions for progress payments as such officer may deem reasonably necessary to encourage procurement from small, disadvantaged, and service-disabled veteran owned businesses. (Amdt. 1 to Ord. BL2011-33 § 3, 2011; Ord. BL2011-33 § 3, 2011; Ord. 92-210 § 1 (11-203), 1992)

4.44.050 Report to the standards board and the council.

The purchasing agent shall annually, before June 1st, report in writing to the standards board and the council concerning the awarding of contracts to small, disadvantaged, and service-disabled veteran owned businesses during the preceding twelve months. The purchasing agents shall provide interim reports to the metropolitan clerk and directly to any member of council who so requests at least quarterly. (Amdt. 1 to Ord. BL2011-33 § 3, 2011; Ord. BL2011-33 § 3, 2011; Ord. 92-210 § 1 (11-204), 1992)

4.44.060 Compliance with federal requirements.

Where a procurement involves the expenditure of federal assistance or contract funds, the purchasing agent shall comply with such federal law and authorized regulations which are mandatorily applicable and which are not presently reflected in this Title 4. (Ord. 92-210 § 1 (11-301), 1992)

Chapter 4.46

PROCUREMENT NONDISCRIMINATION PROGRAM*

Sections:

4.46.001	**Short title.**
4.46.010	**Policy and objectives.**
4.46.020	**Definitions.**
4.46.030	**Office of minority and women business assistance.**
4.46.040	**Program scope and applicability.**
4.46.050	**MWBE designation.**
4.46.060	**Benchmarks.**
4.46.070	**Bid requirements.**
4.46.080	**Good faith efforts.**
4.46.090	**Evaluation of bid for program compliance.**
4.46.100	**Sanctions and penalties for non-compliance.**
4.46.110	**Goals.**
4.46.120	**Outreach program.**
4.46.130	**Mentor-protege initiative.**
4.46.140	**Severability.**
4.46.150	**Application.**

4.46.001 Short title.

This program shall be known as the "Metropolitan Government of Nashville and Davidson County Procurement Nondiscrimination Program." (Ord. BL2008-161 § 1, 2008)

4.46.010 Policy and objectives.

A. Policy Statement. It is the policy of the Metropolitan Government of Nashville and Davidson County to promote full and equal business opportunities for all persons doing business with the Metropolitan Government by increasing the purchase of goods and services from minority and women owned businesses within the area of the Metropolitan Government. It is further the policy of the Metropolitan Government that firms seeking to participate in contracting and procurement activities with the Metropolitan Government are not prevented from doing so on the basis of the race or gender of their owners and that the Metropolitan Government not be a passive participant in any private scheme of discrimination.

B. Promotion of Equal Opportunity. The Metropolitan Government strictly prohibits discrimination against businesses based on the race, color, national origin, or gender of their owners or employees in the conduct of any Metropolitan Government affairs. No person shall be denied the benefit of, or otherwise discriminated against, on the grounds of race, color, national origin or gender in connection with the award or performance of any contract paid for, in whole or in part, with funds of the Metropolitan Government.

C. Program Objectives. The objective of the Procurement Nondiscrimination Program ("the Program") is to promote and encourage full and open competition in all Metropolitan Government procurement and purchasing; encourage all Metropolitan Government personnel involved in procurement and contracting activities to utilize appropriate purchasing procedures; to prevent the Metropolitan Government from becoming a passive participant in any unlawful discrimination; to spur economic development in the public and private sectors of the local economy; and, to rectify that participation in such unlawful discrimination. (Ord. BL2008-161 § 1, 2008)

4.46.020 Definitions.

For the purpose of this chapter, the following words, terms, phrases and abbreviations shall have the following meanings:

"African American" means persons having origins in any black racial group of Africa. It includes people who indicate their race as "Black, African American, or Negro," or provide written entries such as African American, Afro American, Kenyan, Nigerian, or Haitian.

"African American Business Enterprise (AABE)" means a business that is an independent and continuing enterprise for profit, performing a commercially useful function, and that is owned and controlled by one or more African Americans.

"Asian" means persons having origins in any of the original people of the Far East, Southeast Asia, the Indian subcontinent or the Pacific Islands.

"Asian Business Enterprise (ABE)" means a business which is an independent and continuing enterprise for profit, performing a commercially useful function, and which is owned and controlled by one or more Asian individuals.

*__Editor's note—__This Chapter has more than one version. This version applies to any contract entered into and executed by the Metropolitan Government, or any formal solicitation issued, prior to the applicability date of Ordinance BL2018-1419. Ordinance BL2018-1419 is applicable on July 3, 2019 (or upon the earlier certification by the Director of Finance to the Metropolitan Council that the offices and processes contemplated by Ordinance BL2018-1419 have been established). This program remains valid pursuant to Public Chapter 458 (2025)'s definition allowing preferences for lawful eligibility criteria. Here the criteria is lawful because *City of Richmond v. J.A. Croson Co.*, 488 U.S. 469 (1989) permits these types of programs, which are supported by a disparity study establishing a factual predicate.

"Availability" means being "qualified" to perform work for the Metropolitan Government. This means that the Bidder does business within an industry group from which agencies of the Metropolitan Government make certain purchases; the firm's owner has demonstrated the belief that the firm is qualified and able to perform the work; the firm is located within the relevant geographical area such that it can do business with agencies of the Metro Government; and the bidder has demonstrated an interest in obtaining work by filling out a vendor application, has bid, or is going through the certification process.

"Bid" means a quotation, proposal, sealed bid or offer to perform or provide labor, materials, supplies or services to the Metropolitan Government for a price.

"Bidder" means any individual, sole proprietorship, partnership, joint venture, or corporation that submits a Bid to the Metropolitan Government.

"Benchmarking" means the method enabling the Metropolitan Government to track the inclusion of MWBEs in the procurement process. Benchmarks are not quotas or goals, rather, they are percentage ranges based on MWBE availability, current MWBE participation, and previous MWBE participation in the Nashville Metropolitan Statistical Area ("MSA").

"Certification" means the qualifying process that assures buyers and local, state, and federal agencies that a particular business is an MWBE that performs a commercially useful function. Certification or Recertification shall mean official recognition and approval by the Metropolitan Government that a business meets the qualification criteria of an MWBE, as set forth in this Program. Certification or recertification relates to qualifications regarding ownership and control, not the quality of the service or product.

"Commercially useful function" means performance or provision of real and actual services by a Participant under a contract with the Metropolitan Government or under a subcontract with another business enterprise under a contract with the Metropolitan Government. In determining whether a business is performing a commercially useful function, the following non-exclusive factors will be considered:

(i) The nature and amount of work contracted;

(ii) Whether the MWBE has the skill and expertise to perform work for which it has been certified;

(iii) Whether the MWBE actually performs, manages and supervises the work;

(iv) Whether the MWBE intends to purchase commodities and/or services from a non-MWBE and simply resell same to the general or prime contractor for the purpose of allowing those commodities and/or services to be counted towards assessment of a Benchmark or fulfillment of a goal (if implemented);

(v) Standard industry practices relating to the use of subcontractors. Consistent with standard industry practices, a MWBE subcontractor may enter into second tier subcontracts provided that no more than twenty-five percent of the work thereunder will be performed by a non-MWBE unless the subcontractor demonstrates to the satisfaction of the Metropolitan Government that the subcontracting arrangement is consistent with standard industry practice.

"Compliance" means the condition existing when a Participant has met the requirements of this Program.

"Control" or "controlled" for the purpose of determining whether the owner or owners of a potential MWBE controls the potential MWBE, the Metropolitan Government shall consider all of the facts in the record viewed as a whole, including, without limitation the following:

(i) Whether the potential MWBE is an independent business, which means that its commercial viability does not depend on another firm or firms.

(ii) Whether the potential MWBE is subject to any formal or informal restrictions that limit the customary discretion of the MWBE owner. There can be no restrictions through corporate charter provisions, by-law provisions, contracts or any other formal or informal devices that prevent the owner of the potential MWBE from making any business decision without the cooperation of another individual. This paragraph does not preclude a spousal co-signature on documents.

(iii) Whether the owner of the potential MWBE possesses the power to direct or cause the direction of the management and policies of the business enterprise and to make the day-to-day as well as long term decisions on matters of management, policy and operations.

(iv) Whether the owner of the potential MWBE has an understanding of, and managerial and technical competence directly related to, the type of business in which the business enterprise is engaged and the business enterprises' operations. Generally, experience limited to office management, administration, or bookkeeping functions, unrelated to the principal business activities of the business enterprise is insufficient to demonstrate control.

(v) Whether, if a state or local law requires the owner of a particular type of firm to have a particular license or other credential, the owner of the potential MWBE possesses the required license or credential.

"Covenant of non-discrimination" means, collectively, one or more contractual affirmative promises (1) to adopt the policies of the Metropolitan Government

relating to the participation of MWBEs in the procurement process; (2) to undertake certain good faith efforts to solicit MWBE participation; and (3) not to otherwise engage in discriminatory conduct against MWBEs.

"First ranked bidder" means an individual, sole proprietorship, partnership, joint venture, or corporation

that has submitted a bid that, subject to review as contemplated in this chapter, has been tentatively determined pursuant to the requirements of this Title to be the lowest cost bid or highest ranked proposal.

"Goal" means race/gender-conscious corrective measures.

"Good faith efforts" means the voluntary actions of a Participant undertaken in good faith to ensure that it does not discriminate in its contracting practices.

"Hispanic American" means people who identify with the terms "Hispanic" or "Latino" and who classify themselves in a specific Hispanic or Latino category such as "Mexican," "Puerto Rican," "Cuban, "or "other Spanish, Hispanic, or Latino."

"Hispanic American Business Enterprise" means a business that is an independent and continuing enterprise for profit, performing a commercially useful function, and that is owned and controlled by one or more Hispanic American.

"Joint venture" means an association of two or more independent persons, partnerships, corporations (or any combination of them) formed, consistent with the laws of the State of Tennessee, to perform one or more specific contracts limited in scope and duration.

"Minority or Women Owned Business Enterprise ("MWBE")" refers to a business enterprise maintaining a significant business presence in the MSA and performing a commercially useful function that is owned by one or more of the following: (1) African Americans, (2) Native Americans, (3) Hispanic Americans, (4) Asian Americans and (5) Women. Racial and gender categories are separated for monitoring and tracking purposes only.

"Metropolitan Government" means the Metropolitan Government of Nashville and Davidson County, including any of its operating elements, officers, and/or employees acting with authority, but excluding the Metropolitan Development and Housing Authority, Nashville Electric Service, Metropolitan Transit Authority, the Metropolitan Nashville Public Schools, the Metropolitan Hospital Authority, the Metropolitan Sports Authority and the Metropolitan Nashville Airport Authority.

"Metropolitan Nashville Disparity Study" means the Disparity Study prepared by Griffin & Strong, P.C., and submitted to the Metropolitan Government on December 17, 2004.

"MSA" means the Nashville Metropolitan Statistical Area.

"MWBE owned" means that African American, Native American, Hispanic American, Asian American or woman owner(s) who are citizens or permanent residents of the United States individually or collectively possess an ownership interest of at least fifty-one percent of the business.

"Native American" means persons having origins in any of the original people of North America, including American Indians, Eskimos and Aleuts.

"Native American Business Enterprise (NABE)" means a business that is an independent and continuing enterprise for profit, performing a commercially useful function and which is owned and controlled by one or more Native Americans.

"Non-compliance" means the condition existing when a Participant has failed to meet the requirements of this Program.

"Notice" means written communication delivered to the recipient by hand, including express delivery, electronically or by certified mail.

"Participant" means an individual or entity that enters into a contract with the Metropolitan Government to provide goods or services within the scope of the Program, or a subcontractor or supplier to such an individual or entity.

"Program" means the Procurement Nondiscrimination Program.

"Purchasing agent: Shall have the meaning given in Section 8.108 of the Metropolitan Charter.

"Purchasing sector" means the UNSPSC category for the specific procurement of construction, non-professional services and professional services.

"Race/gender-conscious" means any governmental or legislative policy or programmatic action that uses race or gender as criteria for participation.

"Race/gender-neutral" means any governmental or legislative policy or a programmatic action in which race or gender is not among the criteria for participation.

"Satisfactorily completed" or "satisfactory completion" means all of the tasks called for in a contract or subcontract have been accomplished and documented as required by the Metropolitan Government.

"Significant business presence" means that a business enterprise with an established place of business in the MSA at which one or more of its employees is regularly based and that such place of business has a substantial role in the business' performance of a commercially useful function as herein defined. A location utilized solely as a post office box, mail drop or telephone message center or any combination thereof, with no other substantial work function, shall not constitute a significant business presence.

"Supplier" means a warehouser or manufacturer of materials, supplies or equipment that contracts directly with a bidder to provide such materials, supplies or equipment on a project that involves a trade or service.

For purposes of measuring the total contract dollars awarded or paid to suppliers on projects, only amounts paid to suppliers of goods customarily and ordinarily used based upon standard industry or trade practices shall be counted.

"Underutilization" means the percentage of dollars spent by the Metropolitan Government with MWBE's is less than participation of MWBE's than reasonably expected based on the availability of MWBE's within the MSA.

"UNSPSC" means the United Nations Standard Products and Services Code used to identify the Purchasing Sector.

"Women Business Enterprise (WBE)" means a business that is an independent and continuing enterprise for profit, performing a commercially useful function, and which is owned and controlled by one or more women. (Ord. BL2008-161 § 1, 2008)

4.46.030 Office of minority and women business assistance.

A. In the department of finance, division of purchases, a minority and women business assistance section is created and shall be designated as the Office of Minority and Women Business Assistance ("Business Assistance Office" or "BAO").

B. Duties. The BAO shall be primarily responsible for the administration and enforcement of the Program. It shall encourage equal business opportunities to achieve the policies and objectives of the Program by:

(1) Preparing written rules, regulations and procedures consistent with this Program for submission to and approval by the Procurement Standards Board as provided in Section 4.08.020 of this code.

(2) Publishing and making public said rules, regulations and procedures at least thirty days prior to their effective date.

(3) Verifying certification of MWBEs.

(4) Maintaining outreach and assistance programs to promote equal contracting opportunities for MWBEs that wish to do business with the Metropolitan Government.

(5) Maintaining a current database of certified and available MWBEs and making this database accessible to interested parties; that will include the types of services provided by the business enterprise and contact information for the business enterprise. A list from the database will be made available to Participants to assist them in their efforts to meet the Benchmarks of the Program. The list prepared from the database will specify which firms the Metropolitan Government has determined to be certified in accordance with the Metropolitan Government definitions for MWBEs.

(6) Monitoring utilization of MWBE participation on projects for data gathering and informational purposes.

(7) In consultation with the Purchasing Agent, recommending reasonable MWBE Benchmark ranges and, should Goals become necessary pursuant to Section 4.46.110 of this Code, recommending reasonable Goals to the Director of Finance and the Director of Law.

(8) Developing and supplying to each Bidder as part of each Bid solicitation forms for (a) the Covenant of Non-Discrimination, Statement of Successful Subcontractors, (b) Statement of Written Notification to MWBEs, (c) Statement of Interested Subcontractors/Vendors, (d) Statement of Bid Proposals/Price Quotations and (e) Letter of Intent to Perform as a Subcontractor/Joint Venturer. The BAO shall revise these forms as necessary consistent with the purpose and requirements of this chapter.

(9) Investigating written complaints as provided below.

(10) Notifying affected parties in writing of their right to review an adverse recommendation of the BAO.

(11) Preparing reports as requested by the Purchasing Agent or the Finance Director as well as semiannual and annual reports as required by subsection C and D, below, and Section 4.46.110(E).

(12) Performing other tasks as may be required to fulfill the above-stated duties of the Business Assistance Office.

C. Authorization to Monitor. The BAO shall be authorized to collect from all Participants such data and information as is necessary to monitor this Program. This information shall include information regarding business ownership, supplier information, and subcontractor information, all of which shall reflect the race, ethnic origin, gender, business location of the identified businesses, and type of work to be performed indicated by the United Nations Standard Products and Services Codes. Individuals or entities that enter into contracts with the Metropolitan Government shall submit to the BAO subcontractor information reflecting all MWBEs and non-MWBEs providing services on the contract, including total amounts paid to each subcontractor. Failure to provide this information may subject participants to penalties for noncompliance as specified in Section 4.46.100. The BAO shall continuously monitor the participation of MWBEs in the procurement of construction, non-professional services and professional services for Metropolitan Government. Such monitoring shall include, without limitation, a statistical analysis of each construction trade, non-professional services, and professional services to determine whether there is utilization of MWBEs in a manner that is proportionate to the identified availability range. The BAO will provide

written reports to the Purchasing Agent, Finance Director, and Mayor upon request but not less frequently than semiannually.

D. Duty to Report. The Business Assistance Office shall submit an annual report to the Metropolitan Council regarding the effectiveness of the Program. Such report shall include, without limitation, a summary of the purchases, contracts and subcontracts placed with MWBEs for the period and the relative percentage to the total of purchases and contracts for that period. The reports shall also emphasize quantity and quality of MWBE involvement by dollar volume. The report shall specify the race, national origin, gender, and UNSPSC with each category reported separately. Payments made to non-certified MWBEs shall be included as a separate set of figures for purposes of tabulating the total contract dollars going to MWBEs. The report shall include an analysis of the percentage for the reporting period of MWBE awards of the total awards for each MWBE category and Purchasing Sector and the percentage of availability of MWBEs in the MSA for each MWBE category and Purchasing Sector.

E. Contractors' Closeout Activity Reports: In accordance with the Rules and Regulations for the Program, prime contractors and prime consultants shall provide closeout activity reports to the BAO identifying activities of all subcontractors and sub-consultants in order to monitor MWBE participation.

F. Authority to Investigate Discriminatory Practices: Should a Bidder or Participant submit a written complaint of discrimination, the BAO is authorized to investigate the complaint. An investigation may be initiated based solely on a finding of a significant statistical disparity from the Benchmark in the Participant's utilization of MWBEs.

Further, such investigations may be initiated when the BAO receives information that provides a reasonable basis to believe that an individual contractor seeking to contract or contracting with Metropolitan Government may be engaging in discriminatory conduct with relation to the Bid process. The details of that investigation, including findings, shall be recorded and maintained by the BAO.

G. Evaluation of Compliance: Pursuant to Section 4.46.090, prior to issuing a notice of award the BAO shall review a Bid when the Purchasing Agent has reached an intent to award. (Amdt. 1 to Ord. BL2018-1063 § 1, 2018; Ord. BL2018-1063 § 1, 2018; Ord. BL2008-161 § 1, 2008)

4.46.040 Program scope and applicability.

The following are the categories of Metropolitan Government contracts covered by the Program:

Category A—Construction: Includes any and all contracting relating to buildings, facilities and other erected structures on real estate owned by the Metropolitan Government such as new construction, rehabilitations, remodeling and repairs.

Category B—Non-professional Services: Encompasses the procurement of advertising, printing, non-construction repairs, janitorial services, training seminars and workshops, computer and information systems, security, shipping and mailing, microfiche and microfilm, courier, storage, travel, consulting and other non-professional services.

Category C—Professional Services: Includes the purchase of any or all services covered by Section 4.08.080 for which applicable selection criteria may require a Participant to possess a license or other certificate of competency such as accounting, auditing, architectural, and engineering. (Ord. BL2008-161 § 1, 2008)

4.46.050 MWBE designation.

A. Certification. Certification is the qualifying process that ensures that a particular business is a MWBE that performs a commercially useful function. Certification assures that interested MWBEs have the proper ownership, control, and management as defined in the Program. Current contact information about the certifying entity shall be maintained by the BAO and provided to interested persons upon request.

B. Reciprocal Certification. Subject to the approval of the Director of Finance, the BAO may accept certification of a MWBE from another government or private entity having certification standards at least as stringent as those created in this chapter. (Ord. BL2008-161 § 1, 2008)

4.46.060 Benchmarks.

A. Definition and Purpose. The Metropolitan Government has a compelling interest in providing equal business opportunities for all persons wishing to do business with it. Therefore, the Metropolitan Government will monitor and track MWBE availability and participation in the procurement process through Benchmarks. Benchmarks are not quotas but a method enabling the Metropolitan Government to compare the participation of MWBE's in the procurement process with expected participation rates based on the availability of MWBE's within the MSA.

B. Procedure for Establishing Benchmarks. The BAO shall establish and recommend proposed Benchmarks to the Purchasing Agent and Finance Director biennially. The BAO shall evaluate the levels of MWBE participation for the Metropolitan Government's overall procurement program. As part of the review, the BAO may consider data regarding MWBE participation for the preceding three fiscal years for a more accurate portrayal of MWBE participation. The BAO shall review available MWBE totals and percentages for the MSA that shall be reported in ranges showing expected MWBE participation rates on Metropolitan Government projects for each Procurement Sector based on MWBE availability within the MSA. MWBE availability shall be determined in accordance with current legal, economic, statistical and social science standards. The Purchasing Agent may employ one or more qualified consultants each year to assist the BAO in determining MWBE availability. Benchmarks during the first year of the Program shall be based on data compiled in the Metropolitan Nashville Disparity Study, a copy of which shall be placed on file in the office of the Metropolitan Clerk.

C. Comment Period. The Purchasing Agent shall publish proposed Benchmarks in a newspaper of general circulation at least once each week for four consecutive weeks and shall receive public comments submitted within ten days after the final such publication. The Purchasing Agent shall consider all public comments duly submitted, additional recommendations of the BAO, make any necessary changes to the Benchmarks, and submit the proposed Benchmarks to the Finance Director. The Finance Director shall make any revisions the Finance Director feels are necessary and shall then issue the final Benchmarks, a copy of which shall be filed with the Metropolitan Clerk.

D. Review of Benchmarks. The Benchmarks shall be in effect for a period of two years. BAO shall review Benchmarks annually and shall report its findings to the Purchasing Agent and Finance Director. All total contract dollars awarded to MWBEs shall count towards Benchmark percentages. (Ord. BL2012-315 §§ 1—3, 2013; Ord. BL2008-161 § 1, 2008)

4.46.070 Bid requirements.

No Bid submitted to the Metropolitan Government for work within the scope of the Program shall be considered responsive unless it includes each of the following documents:

A. Covenant of Non-Discrimination. Each Bidder must submit a duly executed and notarized Covenant of Non-Discrimination. This written instrument shall contain promises, averments and/or affirmations made by the Bidder:

(1) To adopt the policies of the Metropolitan Government relating to equal opportunity in contracting on projects and contracts funded, in whole or in part, with funds of the Metropolitan Government;

(2) To attempt certain good faith efforts to solicit MWBE participation on projects and contracts in addition to regular and customary solicitation efforts;

(3) Not to otherwise engage in discriminatory conduct;

(4) To provide a discrimination-free working environment;

(5) That this Covenant of Non-Discrimination shall be continuing in nature and shall remain in full force and effect without interruption;

(6) That the Covenant of Non-Discrimination shall be incorporated by reference into any contract or portion thereof which the Bidder may hereafter obtain; and

(7) That the failure of the Participant to satisfactorily discharge any of the promises of nondiscrimination as made and set forth herein shall constitute a material breach of contract.

B. Statement of Written Notification to MWBEs. Each Bidder must provide a statement that the Bidder has delivered written notice to at least three available certified MWBEs if use of MWBEs is reasonable and if BAO can provide at least three MWBEs for the applicable category. Upon request, names, addresses, and telephone numbers for available MWBEs shall be provided by the BAO for each potential subcontracting or supply category in the solicitation. In addition, a Bidder must deliver written notice to all individuals or entities requesting information on the solicitation. The written notice sent to potential subcontractors or vendors shall contain the following:

(1) Sufficient information about the plans, specifications, and relevant terms and conditions of the solicitation to permit development of an understanding of work requirements. This may include information about the work that will be subcontracted or the goods that will be obtained from subcontractors and suppliers;

(2) A contact person knowledgeable of the project documents within the Bidder's office to answer questions about the conditions of the contract;

(3) Information regarding the Bidder's bonding requirements;

(4) The deadline for submission of price quotations.

C. Statement of Successful Subcontractors. Each Bidder shall submit a Statement of Subcontractors. The Statement shall include each successful subcontractor's name, UNSPSC Code, race, gender, national origin, business location, work to be performed, dollar value of the project, and percentage attributable to each subcontractor. In addition, copies of each successful subcontractor's price quotes must be submitted by the close of business on the second business day following submission of a Bid.

D. Statement of Interested Subcontractors/Vendors. Each Bidder shall submit a Statement of Interested Subcontractors/Vendors that shall include each individual or entity requesting information about the project or solicited for participation on the project. The list of subcontractors shall include those persons who did not actually submit a price quotation or a bid, rather just requested information. The statement shall include the individual's or entity's name, UNSPSC Code, race, gender, national origin, business location, and information requested.

E. Statement of Bid Proposals/Price Quotations. Each Bidder shall submit a Statement of Bid Proposals/Price Quotations. The Statement shall include each potential subcontractor's vendor's name, UNSPSC Code, race, gender, national origin, business location, work requested to be performed, and price quotation and/or bid. The statement shall include only those potential subcontractors not selected that actually submitted a bid or proposal for the project.

F. Letter of Intent to Perform as a Subcontractor/Joint Venture. In the event that a Bidder or Participant proposes to use subcontractors or joint ventures if awarded a contract with the Metropolitan Government, such Bidder shall be required to submit to the BAO a letter of intent signed by both the subcontractor/joint venturer and Bidder. This form is to be completed and submitted by the apparent successful Bidder by the end of the second business day following issuance by the Purchasing Agent of a notice of award of contract.

G. Other Information and Data. The BAO may request additional information and data prior to a contract award. This information may include, without limitation, information regarding business ownership of all subcontractors to be utilized on the project, all of which shall reflect the race, gender, ethnic origins, location, and structure of the identified businesses, in order to be eligible for contract award. The BAO with the approval of the Purchasing Agent may declare any Bid nonresponsive upon failure or refusal of the Bidder to provide information and data required by this Program and requested by the Metropolitan Government pursuant to this paragraph.

H. Reporting Subcontractor Substitution or Replacement. The prime contractor shall report any replacements or substitutions of the use of subcontractors to BAO in advance of making the substitution. For reporting purposes, the prime contractor shall report to the BAO statistical data pertaining to the new subcontractor, including race, gender, national origin, and business location. (Ord. BL2008-161 § 1, 2008)

4.46.080 Good faith efforts.

A. Good Faith Efforts. In addition to regular and customary solicitation processes for contacting potential subcontractors and/or vendors, all Bidders are required to:

(1) Make efforts to include MWBEs in the procurement process;

(2) Make efforts to ensure that businesses are not discriminated against on the basis of race, ethnicity or gender;

(3) Ensure that prospective subcontractors, vendors, suppliers and others are not denied opportunities to compete for work for the Metropolitan Government on the basis of their race, ethnicity, or gender;

(4) Afford all firms, including those owned by racial or ethnic minorities and women, opportunities to participate in the performance of the business of the Metropolitan Government to the extent of their availability, capacity and willingness to compete;

(5) Demonstrate compliance with these Program requirements with appropriate documentation submitted with their Bids;

(6) Maintain for a minimum of three years after completion of the contract and final payment detailed records of all correspondence and responses thereto, logs of all telephone calls made and received regarding Metropolitan Government solicitations, copies of advertisements in publications and other media, and other relevant papers required by the Program or Section 4.12.180.

B. Methods of Demonstrating Good Faith Efforts. Bidders shall demonstrate Good Faith Efforts by demonstrating efforts that may include, but are not limited to, the following:

(1) Attending informational meetings to update potential subcontractors or vendors of subcontracting or supply opportunities.

(2) Dividing the contract, in accordance with normal industry practice, into small, economically feasible segments that could be performed by a MWBE. Under no circumstances, however, shall a Bidder segment work solely for the purpose of utilizing MWBEs as subcontractors where such segmentation is not in accordance with common and accepted industry practices relating to the utilization of other firms as subcontractors.

(3) Providing a written explanation for rejection of any potential subcontractor or vendor to the Bidder, including the name of the firm awarded the subcontract or supply agreement. The BAO will maintain these records and make same available to any subcontractor or vendor rejected by the Bidder.

(4) Providing a non-discriminatory work site. Maintaining a work environment free of harassment, intimidation and coercion at all construction sites, offices and other facilities at which the Bidder's employees are assigned to work. The Bidder shall specifically ensure that all labor supervisors, superintendents, and other on-site supervisory personnel are aware of and carry out the Bidder's obligation to maintain a non-discriminatory work environment.

(5) Soliciting specific individual MWBEs whose availability as potential sources of goods or services can be reasonably ascertained. This measure includes sending letters or making other personal contacts with specific certified MWBEs including those that the Bidder has contracted with in the past as well as other MWBEs with which the Bidder may be unfamiliar, but whose identities can be ascertained from a directory of certified MWBEs maintained by the BAO.

(6) Sending letters or making other personal contacts with other programs as well as private trade associations in the MSA which are known to publicize contracting and procurement opportunities for the benefit of their respective associates and/or members.

(7) Advertising in trade publications of general circulation in the MSA. The advertisement shall identify and describe the specific subcontracting or other opportunity in reasonable detail.

(8) Following up initial solicitations by contacting potential subcontractors or vendors to determine, with certainty, whether these firms are interested in participating on the contract.

(9) Thoroughly investigating the potential subcontractor or vendor's capabilities in good faith.

(10) Providing reasonable assistance to a MWBE in need of equipment, supplies, bonding, letters of credit and/or insurance.

(11) Providing reasonable technical assistance to MWBEs to ameliorate any deficiencies of technical knowledge or advance skill, where such assistance is undertaken by the Bidder to facilitate the MWBE's successful participation on a project or contract. (Ord. BL2008-161 § 1, 2008)

4.46.090 Evaluation of bid for program compliance.

A. If the Bid submitted by the First Ranked Bidder in response to a solicitation issued by the Purchasing Agent includes the documents required by Section 4.46.070 of this chapter, the Purchasing Agent shall forward the Bid to the BAO. The BAO shall then evaluate whether it believes the First Ranked Bidder has engaged in and adequately documented with its Bid efforts to ensure that its process of soliciting, evaluating and awarding subcontracts, placing orders, and partnering with other companies has met the criteria of the Program including the use of Good Faith Efforts. Upon a recommendation of compliance by the First Ranked Bidder, the BAO shall notify the Purchasing Agent. The Purchasing Agent shall proceed to award a contract upon concurrence with the BAO recommendation.

B. If the BAO's preliminary analysis suggests that the First Ranked Bidder has failed to comply with the good faith or other requirements of the Program, the BAO shall send written notice to the Bidder. The notice shall set forth with particularity the reasons for the questioning of non-compliance and shall schedule a conference at which the issue may be reviewed with the Bidder. The Bidder shall be permitted to present any additional materials relevant to the question of non-compliance for consideration by the BAO. If, after the conference and upon consideration of all relevant materials, the BAO is convinced that the Bidder is in fact compliant with the requirements of this chapter, the BAO shall notify the Purchasing Agent, who shall proceed with an award of contract upon concurrence with the BAO recommendation. If the BAO concludes that the Bidder is not compliant with the requirements of this chapter, the BAO shall so notify the Purchasing Agent, who shall, upon concurrence with the conclusion, reject that Bidder's Bid, identify another Bidder as the First Ranked Bidder, and forward that Bidder's Bid to the BAO. The BAO shall then proceed to evaluate the Bid submitted by the new First Ranked Bidder. The Purchasing Agent shall decide whether a determination of nonresponsiveness shall be made pursuant to Section 4.12.110. Decisions of the Purchasing Agent under this section are subject to protest in accordance with Section 4.36.010, et seq., and the rules and regulations of the Purchasing Division. (Ord. BL2008-161 § 1, 2008)

4.46.100 Sanctions and penalties for non-compliance.

The BAO shall recommend appropriate mechanisms to enforce the provisions of this Program to the Purchasing Agent. Further, the failure of a Bidder or Participant to comply with the requirements of this chapter may be grounds for suspension or debarment by the Purchasing Agent pursuant to the standards set forth in Metropolitan Code of Laws § 4.36.020. Sanctions shall not be imposed unless there is evidence of specific conduct on the part of Participant that is inconsistent with or in direct contravention of the applicable provisions of this Program. In determining appropriate sanctions, the Purchasing Agent shall consider the following factors:

(1) Whether the failure to comply with applicable requirements involved intentional conduct or, alternatively, may be reasonably concluded to have resulted from a misunderstanding on the part of the Participant of the duties imposed on them by this Program;

(2) The number of specific incidences of failure by the Participant to comply;

(3) Whether the Participant has been previously suspended;

(4) Whether the Participant has failed or refused to provide the BAO with any information required or requested by this Program;

(5) Whether the Participant has materially misrepresented any applicable facts in any filing or communication to the BAO; and

(6) Whether the Participant has subsequently restructured or taken other action to cure the deficiencies in meeting applicable requirements. (Ord. BL2008-161 § 1, 2008)

4.46.110 Goals.

A. Goals are race/gender-conscious measures that may be established in the event that periodic review of the Metropolitan Government procurement practices reveal a continuing pattern of underutilization of and discrimination against MWBEs by the Metropolitan Government. Goals shall only be considered in the event the Metropolitan Government has exhausted all race/gender neutral remedies and continues to fall below identified Benchmarks in contracting.

B. Procedure for Adopting Goals. After using Benchmarks and Good Faith Efforts of the Program for 24 months, if the BAO semiannual review shows continuing underutilization of MWBEs and can demonstrate a compelling interest to support imposition of goals in specific subcategories, upon concurrence of the Purchasing Agent, the BAO shall recommend to the Finance Director and the Director of Law the implementation of goals for selected contracts in the identified subcategories. If the Finance Director and the Director of Law agree that goals are warranted and necessary and that the goals proposed by the BAO and the Purchasing Agent are reasonably likely to result in achieving satisfactory utilization, the BAO shall publish the proposed goals three times over a period of thirty days in a newspaper of general circulation. After such time BAO will hold a ten (10) day comment period to receive written comments from any interested individual or entity regarding implementation of a race/gender-conscious program. Subsequent to this comment period, upon approval of the Finance Director and the Director of Law, the BAO with the concurrence of the Purchasing Agent, shall prepare a resolution for submission to the Metropolitan Council with a proposal to implement goals and the proposed goals.

C. Goals in Bids/Proposals. Should the Metropolitan Council approve the imposition of goals by a resolution receiving twenty-one affirmative votes, the Purchasing Agent may consider the inclusion or underutilization of MWBEs in specific industry subcategory as an additional factor in the evaluation of a Bid. The Purchasing Agent may consider the following types of participation toward achievement of a goal:

(1) The total dollar value of the contract may be counted toward the specified goal. This includes the fees and commissions charged for professional services, legal counsel, manufacturers, financial consultants, and insurance agents.

(2) The actual portion of MWBE participation in a joint venture is counted toward the goal.

D. MWBE Participation in Meeting Goals. In the event that goals are established, all Participants, including MWBE Participants, shall make good faith efforts to attain goals through all subcontractor work.

(1) Prime Contractors: A Participant may subcontract portions of its contract consistent with industry standards. However, should a prime contractor subcontract greater portions of the project than are consistent with industry standards, then the MWBE will not have performed a commercially useful function as defined herein. Therefore, such participation by a MWBE will not be counted towards any goal.

(2) Subcontractor Participation: Where a Participant utilizes one or more subcontractors or sub-subcontractors to attain any goal(s) for an underutilized subcategory, the prime contractor may count said subcontractor or sub-subcontractor work toward goals. In no way shall subcontractors' or sub-subcontractors' work or dollar amount be construed to count toward said goal more

than once. Only expenditures to MWBE subcontractors that perform a commercially useful function in the work of the project or contract may be counted.

(3) Supplier Participation: Where a Participant utilizes suppliers to satisfy the goal(s) in whole or in part, the MWBE suppliers must perform a commercially useful function. Supplier participation may be approved upon review of the following factors:

(a) The nature and amount of supplies to be furnished;

(b) Whether the MWBE is a manufacturer, wholesaler or distributor of the supplies and has the capabilities to deliver same in accordance with its certification;

(c) Whether the MWBE actually performs, manages and supervises the work to furnish the supplies; and

(d) Whether the MWBE intends to purchase supplies from a non-MWBE and simply resell same to the general or prime contractor for allowing those supplies to be counted towards fulfillment of the goal(s).

(4) Joint Venture Participation: Where Participants engage in a joint venture to meet a goal, the prime contractor shall demonstrate that the MWBE joint venturer's participation meets the standards for a commercially useful function. The BAO shall review and approve all contractual agreements and other supporting documentation to determine the percentage of MWBE participation resulting from the joint venture that may be credited towards applicable goals of the project; and shall make the determination based on the following factors:

(a) The initial capital investment of each venture partner;

(b) The proportional allocation of profits and losses to each venture partner;

(c) The sharing of the right to control the ownership and management of the joint venture;

(d) Actual participation of the venture partners in the performance of work under the project or contract; and

(e) Other pertinent factors of the joint venture.

(5) The degree to which any goals have been attained by joint ventures between MWBE firms, and between MWBE and non-MWBE firms, shall be calculated as follows:

(a) A joint venture consisting of a MWBE and non-MWBE firm functioning as a prime contractor will be credited with MWBE participation based on the percentage of the dollar amount of the work to be performed by the MWBE.

(b) In joint venture Proposals in which all joint venture Participants are MWBEs, the joint venture will be credited with MWBE participation for that portion of the dollar amount of the contract which MWBEs perform and that portion subcontracted to MWBE firms.

(c) In joint venture Proposals, Participants will receive credit toward the goal for the dollar amount purchased from MWBE suppliers.

E. BAO Monitoring: Ending Goals. In the event that goals are established, the BAO shall review and report to the Purchasing Agent semi-annually and to the Metropolitan Council, the Finance Director, and Director of Law annually, the effectiveness of the goals in reducing underutilization of MWBEs. The BAO shall recommend termination of a goal for a Purchasing Sector established by the Metropolitan Council when the semiannual review shows underutilization has ceased. In any event, a goal for a Purchasing Sector shall automatically expire two years after adoption by the Metropolitan Council. (Amdt. 1 to Ord. BL2008-161 § 1, 2008; Ord. BL2008-161 § 1, 2008)

4.46.120 Outreach program.

To ensure that opportunities to participate in Metropolitan Government contracts are available to the widest feasible universe of willing, available and qualified businesses, the BAO shall develop and engage in outreach designed to increase public awareness of the Program. This outreach may consist of any of the following:

A. Public Awareness of the Program. To increase the effectiveness of the BAO and to increase the awareness of the Program, the BAO shall disseminate at community events, trade shows, and other appropriate business functions, and publish at regular intervals information describing the Program. This information shall also identify ongoing contracting opportunities.

B. Outreach to MWBEs. The BAO shall assist MWBEs in obtaining certification by disseminating information, providing individualized counseling, and/or conducting seminars regarding the certification process. (Ord. BL2008-161 § 1, 2008)

4.46.130 Mentor-protege initiative.

The BAO shall encourage all contractors and subcontractors to participate in a Mentor/Protege initiative on a voluntary basis for the purpose of enhancing the potential of all MWBEs by building business capability to expand contracting opportunities within an agreed framework of conditions. The initiative is intended to assist in integration of on-the-job training for all emerging businesses and permit a prime contractor to offer assistance on a limited term agreement, generally one

project. Any interested contractor or subcontractor may submit with a Bid a completed Mentor/Protege Promise demonstrating that such a relationship has been formed. The BAO shall make available a database of potential Mentor and Protege firms. No contractor or vendor shall be penalized or preferred based upon participation or non-participation in this initiative. All administrative functions should be performed by the Protege personnel. The Protege is expected to maintain final decision-making responsibilities regarding the scope of its work. (Ord. BL2008-161 § 1, 2008)

4.46.140 Severability.

If any of the provisions set forth in this chapter, or any section, subsection, paragraph, sentence, clause, phrase, or word thereof shall be found to be invalid, illegal or unenforceable for any reason, the application of the remainder of this chapter shall not be affected by such invalidity. (Ord. BL2008-161 § 1, 2008)

4.46.150 Application.

This chapter shall not apply to any contract entered into by the Metropolitan Government or any solicitation issued prior to the effective date of the adopting ordinance. (Ord. BL2008-161 § 1, 2008)

Chapter 4.48

ETHICS IN PUBLIC CONTRACTING

Sections:

4.48.010	**Definitions.**
4.48.020	**Statement of policy.**
4.48.030	**General standards of ethical conduct.**
4.48.040	**Criminal sanctions.**
4.48.050	**Employee conflict of interest.**
4.48.060	**Employee disclosure requirements.**
4.48.070	**Gratuities and kickbacks.**
4.48.080	**Prohibition against contingent fees.**
4.48.090	**Restrictions on employment of present or former employees.**
4.48.100	**Use of official information.**
4.48.110	**Civil and administrative remedies against employees who breach ethical standards.**
4.48.115	**Restrictions on procurement from nonemployees.**
4.48.120	**Civil and administrative remedies against nonemployees who breach ethical standards.**
4.48.130	**Recovery of value transferred or received in breach of ethical standards.**
4.48.140	**Waiver by procurement appeals board.**

4.48.010 Definitions.

"Blind trust" means an independently managed trust in which the employee-beneficiary has no management rights and in which the employee-beneficiary is not given notice of alterations in, or other dispositions of, the property subject to the trust.

"Conspicuously" means written in such special or distinctive format, print or manner that a reasonable person against whom it is to operate ought to have notice of it.

"Direct or indirect participation" means involvement through decision, approval, disapproval, recommendation, preparation of any part of the purchase request, influencing the content of any specification or procurement standard, rendering of advice, investigation, auditing or any other advisory capacity.

"Financial interest" means:

A. Ownership of any interest or involvement in any relationship from which or as a result of which, a person within the past year has received, or is presently or in the future entitled to receive, more than five hundred dollars per year, or its equivalent;

B. Ownership of such interest in any property or any business as may be specified by the procurement appeals board; or

C. Holding any compensated or uncompensated position in a business, such as an officer, director, trustee, partner or employee.

"Gratuity" means any gift, service, favor, entertainment, lodging, transportation, loan, loan guarantee or any other thing of monetary value, unless consideration of substantially equal or greater value is received.

"Immediate family" means a spouse, children, parents, brothers and sisters and such other relatives as may be designated by the procurement appeals board.

"Official information" means any information which was obtained through or in connection with an employee's government employment and which has not been made available to the general public.

"Official responsibility" means direct administrative or operating authority, whether intermediate or final, either exercisable alone or with others, either personally or through subordinates, to approve, disapprove or otherwise direct metropolitan government action.

"Purchase request" means that document whereby a using agency requests that a contract be entered into for a specified need, and may include, but is not limited to, the technical description of the requested item, delivery schedule, transportation, criteria for evaluation, suggested sources of supply and information supplied for the making of any written determination required by this code. (Ord. 92-210 § 1 (12-101), 1992)

4.48.020 Statement of policy.

A. Public employment is a public trust. It is the policy of the metropolitan government to promote and balance the objective of protecting government integrity and the objective of facilitating the recruitment and retention of personnel needed by the metropolitan government. Such policy is implemented by prescribing essential standards of ethical conduct without creating unnecessary obstacles to entering public service.

B. Public employees must discharge their duties impartially so as to assure fair competitive access to government procurement by responsible contractors. Moreover, they should conduct themselves in such a manner as to foster public confidence in the integrity of the metropolitan government procurement organization.

C. To achieve the purpose of this Article, it is essential that those doing business with the metropolitan government also observe the ethical standards prescribed herein. (Ord. 92-210 § 1 (12-201), 1992)

4.48.030 General standards of ethical conduct.

A. General Ethical Standards for Employees. Each employee of the metropolitan government shall avoid any action, whether or not specifically prohibited by this code, which might result in, or create the appearance of:

1. Using public office for private gain;
2. Giving preferential treatment to any person;
3. Impeding government efficiency or economy;
4. Losing complete independence or impartiality;
5. Making a Metropolitan government decision outside of official channels; or
6. Affecting adversely the confidence of the public in the integrity of the government.

B. Specific Standards. In order to fulfill this general prescribed standard, employees must also meet the specific standards set forth in Section 4.48.050, employee conflict of interest; Section 4.48.060, Employee disclosure requirements; Section 4.48.070, Gratuities and kickbacks; Section 4.48.080, Prohibition against contingent fees; Section 4.48.090, Restrictions on employment of present and former employees and Section 4.48.100, Use of official information.

C. General Ethical Standards for Nonemployees. Any effort to influence any public employee to breach the standards of ethical conduct set forth in this section and Sections 4.48.050 through 4.48.100 of this chapter is also a breach of ethical standards. (Ord. BL2016-526 § 1, 2017; Ord. 92-210 § 1 (12-202), 1992)

4.48.040 Criminal sanctions.

To the extent that violations of the ethical standards of conduct set forth in Sections 4.48.020 through 4.48.100 constitute violations of the criminal laws of this state, they shall be punishable as provided therein. Such sanctions shall be in addition to the civil remedies set forth in this chapter. (Ord. 92-210 § 1 (12-203), 1992)

4.48.050 Employee conflict of interest.

A. Conflict of Interest. It shall be a breach of ethical standards for an employee to participate directly or indirectly in a procurement when the employee knows that:

1. The employee or any member of the employee's immediate family has a financial interest pertaining to the procurement;
2. Business or organization in which the employee, or any member of the employee's immediate family, has a financial interest pertaining to the procurement; or
3. Any other person, business or organization with whom the employee or any member of the employee's immediate family is negotiating or has an arrangement concerning prospective employment involved in the procurement.

B. Financial interest in a Blind Trust. Where an employee or any member of the employee's immediate family holds a financial interest in a blind trust, the employee shall not be deemed to have a conflict of interest with regard to matters pertaining to that financial interest, provided that disclosure of the existence of the blind trust has been made known to the procurement appeals board.

C. Discovery of Actual or Potential Conflict of Interest—Disqualification and Waiver. Upon discovery of an actual or potential conflict of interest, an employee shall promptly file a written statement of disqualification and shall withdraw from further participation in the transaction involved. The employee may, at the same time, apply to the procurement appeals board in accordance with Section 4.48.140, Waiver by procurement appeals board, for a waiver. (Ord. 92-210 § 1 (12-204), 1992)

4.48.060 Employee disclosure requirements.

A. Disclosure of Benefit Received from Contract. Any employee who has, or obtains any benefit from, any metropolitan government contract with a business in which the employee, the employee's spouse or the employee's child has a financial interest shall report such benefit to the procurement appeals board; provided, however, this section shall not apply to a contract with a business where the employee's interest in the business has been placed in a disclosed blind trust.

B. Failure to Disclose Benefit Received. Any employee who knows or should have known of such benefit and fails to report such benefit to the procurement appeals board, is in breach of the ethical standards of this section. (Ord. 92-210 § 1 (12-205), 1992)

4.48.070 Gratuities and kickbacks.

A. Gratuities. It shall be a breach of ethical standards for any person to offer, give or agree to give any employee or former employee, or for any employee or former employee to solicit, demand, accept or agree to accept from another person, a gratuity or an offer of employment in connection with any decision, approval, disapproval, recommendation, preparation of any part of a program requirement or a purchase request, influencing the content of any specification or procurement standard, rendering of advice, investigation, auditing or in any other advisory capacity in any proceeding or application, request for ruling, determination, claim or controversy or other particular matter, pertaining to any program requirement of a contract or subcontract or to any solicitation or proposal therefor.

B. Kickback. It shall be a breach of ethical standards for any payment, gratuity or offer of employment to be made by or on behalf of a subcontractor under a contract to the prime contractor or higher tier subcontractor or any person associated therewith, as an inducement for the award of a subcontract or order.

C. Contract Clause. The prohibition against gratuities and kickbacks prescribed in this section shall be conspicuously set forth in every contract and solicitation therefor. (Ord. 92-210 § 1 (12-206), 1992)

4.48.080 Prohibition against contingent fees.

A. Contingent Fees. It shall be a breach of ethical standards for a person to be retained, or to retain a person, to solicit or secure a metropolitan government contract upon an agreement or understanding for a contingent commission, percentage, or brokerage fee. Notwithstanding the foregoing, it is not a breach of ethical standards to retain bona fide employees or bona fide established commercial selling agencies for the purpose of securing business. In addition, upon approval of the director of finance and the director of law, the purchasing agent is authorized to procure the services of licensed real estate brokers to assist the metropolitan government in real property lease transactions. Such real estate brokers may be compensated on a commercially reasonable commission basis, including options for payment of brokerage fees by the metropolitan government or the lessor of the property.

B. Representation of Contractor. Every person, before being awarded a metropolitan government contract, shall represent in writing, that such person has not retained anyone in violation of subsection a of this section. Failure to do so constitutes a breach of ethical standards.

C. Contract Clause. The representation prescribed in subsection B of this section shall be conspicuously set forth in every contract and solicitation therefor. (Ord. BL2020-407 § 1, 2020; Ord. 92-210 § 1 (12-207), 1992)

4.48.090 Restrictions on employment of present or former employees.

A. Contemporaneous Employment Prohibited. Except as may be permitted by regulations or rulings of the procurement appeals board, it shall be a breach of ethical standards for any employee who is participating directly or indirectly in the procurement process to become or be, while such an employee, the employee of any person contracting with the governmental body by whom the employee is employed.

B. Restrictions on Former Employees Connected with Their Former Duties.

1. Permanent Disqualification of Former Employees Personally Involved in a Particular Matter. It shall be a breach of ethical standards for any former employee knowingly to act as principal, or as an agent for anyone other than the metropolitan government, in connection with any:

a. Judicial or other proceeding, application, request for a ruling or other determination;

b. Contract;

c. Claim; or

d. Charge or controversy,

in which the employee participated personally and substantially through decision, approval, disapproval, recommendation, rendering of advice, investigation or otherwise while an employee, where the metropolitan government is a party or has a direct or substantial interest.

2. One-Year Representation Restriction Regarding Matters for Which a Former Employee Was Officially Responsible. It shall be a breach of ethical standards for any former employee, within one year after cessation of the former employee's official responsibility, knowingly to act as principal or as an agent for anyone other than the metropolitan government, in connection with any:

a. Judicial or other proceeding, application, request for a ruling or other determination;

b. Contract;

c. Claim; or

d. Charge or controversy,

in matters which were within the former employee's official responsibility, where the metropolitan government is a party or has a direct or substantial interest.

C. Disqualification of Business When an Employee Has a Financial Interest. It shall be a breach of ethical standards for a business in which an employee has a financial interest knowingly to act as a principal or as an agent for anyone other than the metropolitan government, in connection with any:

1. Judicial or other proceeding, application, request for ruling or other determination;

2. Contract;

3. Claim; or

4. Charge or controversy

in which the employee either participates personally and substantially through decision, approval, disapproval, recommendation, the rendering of advice, investigation or otherwise or which is the subject of the employee's official responsibility, where the metropolitan government is a party or has a direct and substantial interest.

D. Selling to the metropolitan government After Termination of Employment is Prohibited.

1. It shall be a breach of ethical standards for any former employee, unless the former employee's last annual salary did not exceed eighteen thousand dollars, to engage in selling or attempting to sell supplies, services or construction to the metropolitan government for six months following the date employment ceased.

2. The term "sell" as used herein means signing a bid, proposal or contract; negotiating a contract; contacting any employee for the purpose of obtaining, negotiating or discussing changes in specifications, price, cost allowance or other terms of a contract; settling disputes concerning performance of a contract or any other liaison activity with a view toward the ultimate consummation of a sale although the actual contract therefor is subsequently negotiated by another person; provided, however, that this section is not intended to preclude a former employee from accepting employment with private industry solely because the former employee's employer is a contractor with the metropolitan government; nor shall a former employee be precluded from serving as a consultant to the metropolitan government. (Ord. 92-210 § 1 (12-208), 1992)

4.48.100 Use of official information.

It shall be a breach of ethical standards for any employee or former employee knowingly to use, disclose or allow the use of official information for the purpose of furthering the private interest or personal profit of any person, including the employee. (Ord. 92-210 § 1 (12-209), 1992)

4.48.110 Civil and administrative remedies against employees who breach ethical standards.

A. Existing Remedies Not Impaired. Civil and administrative remedies against employees which are in existence on the effective date of the ordinance codified in this title shall not be impaired.

B. Supplemental Remedies. In addition to existing remedies for breach of ethical standards of this chapter or regulations promulgated hereunder, the procurement appeals board may recommend any one or more of the following:

1. Oral or written warnings or reprimands;

2. Suspension with or without pay for specified periods of time; and

3. Termination of employment.

C. Right to Recover from Employee Value Received in Breach of Ethical Standards. The value of anything received by an employee in breach of the ethical standards of this chapter or regulation promulgated hereunder shall be recoverable by the metropolitan government as provided in section 4.48.130 Recovery of value transferred or received in breach of ethical standards. (Ord. 92-210 § 1 (12-301), 1992)

4.48.115 Restrictions on procurement from nonemployees.

A. Nonemployees who provide services to the metropolitan government regarding the feasibility, cost, design, implementation, or legislative adoption of a particular matter, prior to metropolitan council approval of any particular matter that requires such approval — including proposed capital projects or developments — shall be prohibited from subsequent participation in the procurement process, directly or indirectly, in connection with the particular matter, or with any metropolitan government contract related thereto.

B. A violation of this prohibition shall constitute a breach of ethical standards.

C. The restrictions within this section shall be subject to waiver by regulations of the procurement standards board. (Amdt. 1 to Ord. BL2017-952 § 1, 2017; Ord. BL2017-952 § 1, 2017)

4.48.120 Civil and administrative remedies against nonemployees who breach ethical standards.

A. Existing Remedies Not impaired. Civil and administrative remedies against nonemployees which are in existence on the effective date of the ordinance codified in this title shall not be impaired.

B. Supplemental Remedies. In addition to existing remedies for breach of ethical standards of this chapter or regulations promulgated hereunder, the procurement appeals board may impose any one or more of the following;

1. Written warnings or reprimands;

2. Termination of transactions; and

3. Debarment or suspension from being a contractor or subcontractor under metropolitan government contracts.

C. Right to Recover from Nonemployee Value Transferred in Breach of Ethical Standards. The value of anything transferred in breach of the ethical standards of this chapter or regulations promulgated hereunder by a non-employee shall be recoverable by the metropolitan government as provided in Section 4.48.130, Recovery of value transferred or received in breach of ethical standards.

D. Right of the Metropolitan Government to Debar or Suspend. Debarment or suspension may be imposed by the purchasing agent or procurement appeals board in

accordance with the procedure set forth in Section 4.36.020, Authority to debar or suspend, for breach of ethical standards of this chapter, provided that such action may not be taken without the concurrence of the director of law. (Ord. 92-210 § 1 (12-302), 1992)

4.48.130 Recovery of value transferred or received in breach of ethical standards.

A. General Provisions. The value of anything transferred or received in breach of the ethical standards of this chapter or regulations promulgated hereunder by an employee or a nonemployee may be recovered from both the employee and the nonemployee.

B. Recovery of Kickbacks by the metropolitan government. Upon a showing that a subcontractor made a kickback to a prime contractor or a higher-tier subcontractor in connection with the award of a subcontract or order thereunder, it shall be conclusively presumed that the amount thereof was included in the price of the subcontract or order and ultimately borne by the metropolitan government and will be recoverable from the subcontractor making such kickbacks. Recovery from one offending party shall not preclude recovery from other offending parties. (Ord. 92-210 § 1 (12-303), 1992)

4.48.140 Waiver by procurement appeals board.

On written request of an employee, the procurement appeals board may grant an employee a written waiver from the application of Section 4.48.050, Employee conflict of interest and grant permission to proceed with the transaction to such extent and upon such terms and conditions as may be specified. Such waiver and permission may be granted when the interest of the metropolitan government so requires or when the ethical conflict is insubstantial or remote. (Ord. 92-210 § 1 (12-401), 1992)

Title 5

REVENUE AND FINANCE

Chapters:

Division I. Financial Policies

5.04 General Provisions
5.06 Tax Increment Financing
5.08 Depositories for Metropolitan Funds
5.10 Public Art Financing
5.11 Tree Canopy Restoration and Maintenance—Financing

Division II. Taxes

5.12 Hotel Occupancy Privilege Tax
5.14 Privilege Tax on Sale of Tickets to Events at Municipal Stadium
5.16 Privilege Taxes
5.20 Property Taxes
5.22 Commercial Property Assessed Clean Energy and Resilience (C-PACER) Program
5.24 Property Identification Maps for Tax Assessment
5.28 Retailers' Sales Tax
5.32 Vehicle Taxes

Division III. Urban Services District

5.36 Privilege Taxes
5.40 Tax on Utility Poles in Streets

Division I. Financial Policies

Chapter 5.04

GENERAL PROVISIONS

Sections:

5.04.010	Funds collected—Checks made payable to metropolitan government.
5.04.012	Returned check charge.
5.04.015	Appropriations from general fund reserve fund (four percent fund).
5.04.020	Equipment or automobile leases—Approval required when.
5.04.030	Land leases or franchises—Disclosure of ownership.
5.04.040	Architectural contracts—Space utilization committee.
5.04.050	Acceptance of funds—Property sold or forfeited.
5.04.060	Review of fees charged by the metropolitan government—Submission of report to the metropolitan council.
5.04.065	Approval of internal agreements by metropolitan council.
5.04.070	Grants made to nonprofit organizations.
5.04.075	Procedure for grant applications subject to council approval.
5.04.076	Approval of certain grant contracts.
5.04.080	Monthly revenue collection reports.
5.04.090	Litter fee for individuals convicted of DUI.
5.04.100	Limitation on use of metropolitan government funds for signage.
5.04.105	Debt management policy required.
5.04.110	Debt report to the metropolitan council.
5.04.115	Submission of finance communications from the State of Tennessee to the metropolitan council.
5.04.120	Acceptance of donations.
5.04.130	Merit-based grant program.
5.04.140	Prohibition on use of real property proceeds.
5.04.150	Cost itemization for capital projects.
5.04.160	Music City Center PILOTs funding affordable and workforce housing.
5.04.170	Fund balance reserve policy required.

5.04.010 Funds collected—Checks made payable to metropolitan government.

All public officials who collect funds on behalf of the metropolitan government shall have all checks made payable to the metropolitan government and not in the name of any individual public official. The checks may be made payable to the official office name, but not to any individual person's name. (Prior code § 15-1-2.1)

5.04.012 Returned check charge.

A handling charge of thirty dollars shall be assessed by all offices and department of the metropolitan government against the maker or drawer of any check that is dishonored because the maker or drawer did not have an account with, or sufficient funds with the financial institution, or the check has an incorrect or insufficient signature thereon. (Ord. BL2007-1442 § 1, 2007; Ord. 93-583 § 1, 1993)

5.04.015 Appropriations from general fund reserve fund (four percent fund).

A. Any resolution of the metropolitan council which appropriates funds from the general reserve fund shall contain in the body of the resolution information which justifies the expenditure of such funds. Such information shall include, but is not limited to, the following:

1. Cost of equipment, fixtures, furnishing or repairs;
2. Cost of construction;
3. Age of equipment or furnishings which are being replaced;
4. Expected life of equipment or furnishings being acquired;
5. Any such other information as may be necessary and appropriate.

B. The council shall not consider any resolution requesting funds for the renovation of the office of an elected official until such elected official has been in office a period of ninety days.

C. Further, the council shall not approve the purchase of duty uniforms from the general fund reserve fund unless such uniforms have a use of ten years or longer.

D. Notwithstanding any other ordinance or provision to the contrary, no expenditure for any item shall be reimbursed from the general fund reserve fund to the operating budget for any department when such items have been purchased without prior appropriation by the metropolitan council, except emergency purchases which have been approved by the director of finance.

E. The metropolitan council shall not consider any resolution appropriating funds from the general fund reserve fund (four percent fund) for the benefit of any department, agency, board or commission of the metropolitan government which has received an appropriation from such fund unless the department, agency, board or commission:

1. Has expended the funds previously appropriated for the purpose appropriated; or

2. Demonstrates a reasonable time to expend such funds; and

3. Discloses the status of prior appropriations.

F. The information sheet and any required purchase requisitions must be executed by the appropriate department head, official or any other elected official of the metropolitan government.

G. When funds requested pursuant to this section are to be used exclusively within a single council district, written notice shall be given to the councilmember representing that district at least one week before the resolution appropriating funds is filed with the metropolitan clerk. Included in this notice should be the information sheet for the expenditure or equivalent information. (Ord. BL2018-1142 § 1, 2018; Ord. 94-1209 § 1, 1994; Ord. S90-1407 § 1, 1991; Amdt. 3 to Ord. 86-1534, 3/17/87; Amdt. 2 to Ord. 86-1534, 2/3/87; Amdt. 1 to Ord. 86-1534, 2/3/87; Ord. 86-1534 § 1, 1987)

5.04.020 Equipment or automobile leases—Approval required when.

All leases for equipment or automobiles shall be approved by resolution of the metropolitan council if the annual expenditure for the lease exceeds five thousand dollars per year. This section applies to all departments, boards, commissions and agencies of the metropolitan government. Provided, however, the foregoing to the contrary notwithstanding, this section shall not apply to the metropolitan board of public education.

This section shall not apply to leases of equipment (exclusive of office equipment) and motor vehicles used for seasonal construction or repair work including, but not limited to street and road paving and construction projects. (Ord. BL2007-1445 § 1, 2007; §§ 1, 2 of Amdt. 1 to Ord. 96-155, 1/16/96; Ord. 96-155 § 1, 1996; Ord. 90-1339 § 1 (2-4), 1990; prior code § 2-1-3.5)

5.04.030 Land leases or franchises—Disclosure of ownership.

A. Upon the vote of ten members of council, any businesses applying for a franchise with the metropolitan government, or applying for a lease of land owned by the metropolitan government, or seeking to sublease land owned by the metropolitan government, shall be required to provide, along with their application, a list of stockholders and persons having an interest in such businesses.

B. Upon the vote of ten members of council, any businesses holding land leases or franchises with the metropolitan government, or subleasing land owned by the metropolitan government, shall be required to provide a list of stockholders and persons having an interest in such businesses. (Prior code § 2-1-3.1)

5.04.040 Architectural contracts—Space utilization committee.

The space utilization committee is authorized to enter into architectural contracts where the estimated overall cost of the construction project is less than one million dollars, subject to the approval of the metropolitan county council by resolution. (Prior code § 2-1-3.7)

5.04.050 Acceptance of funds—Property sold or forfeited.

A. Through the council's legislative power as set forth in Sections 2.01(40), 3.05 and 3.06 of the Charter, the metropolitan government, is hereby authorized to accept the distribution of funds from property forfeited and sold under the provisions of Tenn. Code Ann. Sections 39-11-701 et seq., and awarded to the metropolitan government by court order in accordance with Tenn. Code Ann. Section 39-11-713.

B. Any funds accepted by the metropolitan government pursuant to this section shall be used exclusively for law enforcement purposes. The accepted funds shall be immediately deposited into accounts specifically designated for law enforcement purposes.

C. Any funds accepted by the metropolitan government pursuant to this section may not be used to supplement the salaries of any public employee or law enforcement officer, nor may such funds supplant other local or state funds. (Ord. BL2003-1530 § 2, 2003)

5.04.060 Review of fees charged by the metropolitan government—Submission of report to the metropolitan council.

A. Beginning January 31, 2005, and once every three years thereafter, the director of finance or his or her designee shall review all permit fees and other fees

charged by the metropolitan government and its various departments and agencies and submit a report to the metropolitan council within ninety days.

B. The report to the council required in subsection A of this section shall include, but not be limited to, the following information for each fee:

1. The current amount of the fee and the total amount generated annually by the fee;

2. The purpose of the fee;

3. Whether the fee covers the cost to the department or agency for providing the service;

4. A comparison of the fee to surrounding counties and cities of a similar size and population; and

5. Any recommendations for increases or adjustments to the fee. (Ord. BL2004-298 § 1, 2004)

5.04.065 Approval of internal agreements by metropolitan council.

A. Any department, board, commission or agency of the metropolitan government allocating funds, services, property, or equipment valued in excess of five hundred thousand dollars to another department, board, commission, or agency of the metropolitan government shall enter a formal memorandum of understanding, to be submitted to the department of finance, which must be approved by resolution adopted by the metropolitan council by twenty-one affirmative votes. If there is more than one allocation of funds, services, property, or equipment between or among departments, boards, commissions, or agencies for a single project, and the cumulative value of the allocations is in excess of five hundred thousand dollars, then the requirements of this section shall apply. If separate allocations for a single project are made more than twenty-four months apart, then the requirements of this section shall not apply. For purposes of this section, the term "project" shall be construed broadly to include all projects and parts thereof that are reasonably related.

B. This section shall not apply to allocations of funds, services, property or equipment between departments, boards, commissions or agencies of the metropolitan government specifically addressed and itemized within the current annual operating budget.

C. This section shall not apply to any memorandum of understanding or agreement exclusively between the Metropolitan Nashville Airport Authority, the Nashville Electric Service, the Metropolitan Transit Authority, and/or the Metropolitan Development and Housing Authority. (Ord. BL2018-1171 § 1, 2018; Ord. BL2018-1123 § 1, 2018)

5.04.070 Grants made to nonprofit organizations.

A. The metropolitan council is authorized in accordance with the provisions of Tenn. Code Ann. Section 7-3-314 to appropriate funds for the financial aid of nonprofit organizations by the adoption of a resolution receiving twenty-one affirmative votes, or as part of the annual operating budget ordinance adopted by the council.

B. Prior to the adoption of a resolution appropriating funds to a nonprofit organization or the expenditure of funds authorized in the operating budget ordinance as an appropriation to a nonprofit organization, such nonprofit organization shall submit to the metropolitan government the following information:

1. A copy of its corporate charter or other articles, constitution, bylaws, or instruments of organization;

2. A copy of a letter from the Internal Revenue Service evidencing the fact that the organization is a nonprofit, tax-exempt organization under the Internal Revenue Code of 1986, as amended;

3. A statement of the nature and extent of the organization's program that serves the residents of the metropolitan government;

4. The proposed use of the funds to be provided by the metropolitan government;

5. The proposed budget of the organization, indicating all sources of funds and a line-item identification of the proposed expenditure of metropolitan government funds;

6. A copy of information required in subsection E of this section.

7. Additional information may be requested by the office of financial accountability, including requests for additional information or supporting documentation related to the requirements in this subsection.

C. The information required in subsection B of this section shall be retained in the metropolitan clerk's office and shall be available for public inspection during regular business hours.

D. The provisions of this section shall not apply to nonprofit civic and charitable organizations receiving grants from the Metropolitan Nashville Arts Commission in accordance with Section 2.112.040 of this code.

E. Nonprofit organizations meeting the criteria below shall be required to submit the following information pursuant to subsection B.6:

1. Organizations with five hundred thousand dollars or more in total annual revenue or receiving grant funds from the Metropolitan Government in excess of

fifty thousand dollars are required to submit an annual audit conducted by an independent CPA in accordance with generally accepted auditing standards;

2. Organizations with total annual revenue between two hundred thousand dollars and five hundred thousand dollars or receiving grant funds from the Metropolitan Government between twenty-five thousand dollars and fifty thousand dollars are required to submit a review of financial statements conducted by an independent CPA;

3. Organizations with total revenue between fifty thousand dollars and two hundred fifty thousand dollars or receiving grant funds between five thousand dollars and twenty-five thousand dollars are required to submit a compilation of financial statements prepared by an independent CPA; and

4. Organizations with total revenue of fifty thousand dollar or less, or receiving grant funds of five thousand dollars or less, are required to submit internally prepared financial statements.

F. For the purposes of this section, the following definitions shall apply:

1. "Audit" means a formal examination of the organization's accounting records and financial situation in accordance with the generally accepted auditing standards issued by the American Institute of Certified Public Accountants. The purpose of an audit is to provide financial statement users with an opinion by the auditor on whether the financial statements are presented fairly, in all material respects, in accordance with an applicable financial reporting framework, which enhances the degree of confidence that intended users can place in the financial statements.

2. "Review of Financial Statements" means an independent CPA expresses a conclusion regarding the entity's financial statements in accordance with an applicable financial reporting framework. The independent CPA's conclusion is based upon the CPA obtaining limited assurance. The CPA's report includes a description of the nature of a review engagement as context for the readers of the report to be able to understand the conclusion.

3. "Compilation of Financial Statements" means financial statements compiled by an independent CPA for the purposes of assisting management in presenting the financial information in the form of financial statements. A compilation differs significantly from a review or an audit of financial statements. A compilation does not contemplate performing inquiry, analytical procedures, or other procedures performed in a review.

4. "Internally prepared financial statements" means financial statements prepared by the organization's chief financial officer and/or bookkeeper. (Ord. BL2021-1049 §§ 1, 2, 2022; Amdt. 1 to Ord. BL2013-578 § 1, 2013; Ord. BL2013-578 § 1, 2013; Amdt. 1 with Ord. BL2004-421 § 1, 2005)

5.04.075 Procedure for grant applications subject to council approval.

A. Departments, agencies, boards and commissions of the metropolitan government seeking grant funding for which the grant application is required to be approved by the metropolitan council shall make every effort to obtain council approval of the grant application before it is submitted to the grantor. In the event there is insufficient time to obtain council approval before the grant application deadline, it is permissible for a metropolitan government department, agency, board or commission to submit the grant application to the grantor contingent upon approval by the council. In the event the council does not approve a grant application that has been previously submitted, the application shall be deemed null and void and any funds received from the grantor shall be returned by the metropolitan government.

B. Grant applications that are not otherwise required to be approved by the metropolitan council may be submitted to the grantor by metropolitan government departments, agencies, boards, and commissions without being considered by the metropolitan council if:

1. The grant, once awarded, would not require a local cash match from the metropolitan government;

2. The application itself does not contain any terms or provisions that would subject the metropolitan government or any of its employees to any liability; and

3. The department of finance and the department of law are notified in writing of the grant application at the time it is submitted. (Ord. BL2013-576 § 1, 2013; Ord. BL2007-1432 § 1, 2007)

5.04.076 Approval of certain grant contracts.

All grant contracts requiring the approval of the metropolitan council may be approved by resolution. (Ord. BL2014-818 § 1, 2014)

5.04.080 Monthly revenue collection reports.

The department of finance shall provide each member of the metropolitan council on a monthly basis a copy of the latest revenue collections for the metropolitan government for the current fiscal year. Such report shall contain the current year's budgeted revenues, year-to-date revenues for the most recently completed month, year-to-date revenues for the same month in the previous year, and the differences between these two years' revenues. The object account combinations shall be the same as those used in the financial pages of the final budget book for

the current fiscal year. The above revenue information to be provided in the report shall be provided for each department in the general fund of the general services district and the general fund of the urban services district. (Amdt. 1 of Ord. BL2005-730, 2005; Ord. BL2005-730 § 1, 2005)

5.04.090 Litter fee for individuals convicted of DUI.

A. The metropolitan government's DUI probation department administered by the Davidson County State Trial Courts shall charge a litter fee equivalent to the jailer's fee adopted by the metropolitan council under T.C.A. 8-26-105(a) for each day an individual picks up litter pursuant to T.C.A. 55-10-403.

B. Fifty percent of the litter fees collected shall be allocated to the fines and forfeiture account of the state trial courts and fifty percent shall be allocated to the sheriff's office to offset the cost of administering the litter pick up program. (Ord. BL2010-686 § 1, 2010)

Editor's note—Ord. BL2010-686 § 1, approved June 18, 2010, did not specifically amend the Code. Therefore, such ordinance has been added as § 5.04.090 at the editor's discretion.

5.04.100 Limitation on use of metropolitan government funds for signage.

No funds of the metropolitan government shall be used to purchase, acquire, construct, or erect any ground or building sign measuring greater than one square foot in size that identifies the name of an elected or appointed official. Rather, all such signs shall only identify or advertise the name of the office or facility. Notwithstanding the foregoing, this section shall not prohibit the placement of temporary signs identifying the mayor and member(s) of council associated with public infrastructure projects, or the placement of commemorative permanent signs or markers identifying elected officials in office at the time a public facility was funded and/or constructed. (Amdt. 1 to Ord. BL2012-215 § 1, 2012; Ord. BL2012-215 § 1, 2012)

5.04.105 Debt management policy required.

A. Definitions—As used in this section,

1. "Debt" shall refer to payment obligations created by any category of financial instruments used to pay for or finance capital projects, including general obligation bond debt, bond anticipation notes in the form of commercial paper, revenue bond debt, and amounts owed under any other financial instrument used to pay for or finance capital projects.

2. "Debt management policy" shall refer to a written policy adopted by the council and approved by the mayor that includes requirements of the state funding board's model finance transaction policy and at least the following:

a. The appropriate amount of debt (by category) that should be approved in a capital spending plan;

b. Multiple metrics by which the metropolitan government monitors, measures, and evaluates its financial condition including without limitation the amount of debt and debt service;

c. A discussion of available metrics for measuring the amount of debt and debt service, and the reasons why the metrics selected for section 5.04.105(A)(2)(b) are most appropriate;

d. A discussion of available metrics for measuring debt service including without limitation debt service as a percent of expenditures, revenues, property tax revenue, or per capita, and the reasons why the metrics selected for section 5.04.105(A)(2)(b) are most appropriate;

e. A discussion of what factors regarding financial performance trends, including projections of key economic variables and population trends must be considered in determining the appropriate amount of debt to be approved in a capital spending plan;

f. A discussion of the purposes for which each category of debt may be utilized;

g. A discussion of what impact if any the metropolitan government's net pension obligation, has on the amount of debt (by category) that is advisable.

h. A discussion of what impact if any the metropolitan government's unfunded OPEB obligation has on the amount of debt (by category) that is advisable.

B. The metropolitan government shall at all times maintain a debt management policy.

C. The department of finance shall post the debt management policy on the publicly accessible portion of the metropolitan government's website.

D. The metropolitan government shall not issue or incur any debt in violation of the debt management policy unless approved in advance by the metropolitan council by resolution. (Ord. BL2017-726 § 1, 2017)

5.04.110 Debt report to the metropolitan council.

A. Not later than May 1 of each year, the director of finance shall submit a report to the metropolitan council providing a summary of the metropolitan government's outstanding debt. As used in this section, the term "debt" shall refer to obligations due under bond obligations and

any other debt instruments, including without limitation promissory notes or commercial paper due within one year of issuance.

B. Such report shall be presented to the metropolitan council in conjunction with the presentation of the mayor's proposed operating budget, and shall, at a minimum, include the following information:

1. The total amount of outstanding general obligation and revenue bonds compared to the amount outstanding on June 30 of the previous year.

2. The total amount of outstanding debt excluding revenue bonds of the metropolitan government, stated as a total dollar amount and per capita, and the annual percentage increase or decrease of the total debt excluding revenue bonds from the prior fiscal year.

3. The amount of contingent liability of the general fund (including all sources of revenue such as sales taxes, property taxes and non-tax revenue) that arises from a pledge of any source(s) of revenue contributing to the general fund.

4. The anticipated debt service requirements for the next fiscal year.

5. The estimated percentage of the operating budget required to meet debt service obligations in the next fiscal year.

6. A summary of all outstanding bonds, including identification of the bonds as taxable or tax-exempt, the date of maturity, interest rate, projects funded with the bond proceeds, the amount of principal and interest to be paid on each bond in the next fiscal year, and the bond ratings on outstanding debt from the applicable bond rating agencies.

7. A summary of any debt due under debt instruments other than bond obligations for the previous twelve month period, including the date of each debt instrument, the interest rate, the maturity date, the principal balance, and the amount of interest owed.

8. The gross and present value savings for any debt refunded since July 1 of the current fiscal year.

9. A summary of the total amount of capital spending that has been approved since 2009 by the metropolitan council in a prior capital spending plan, but for which bonds have not yet been issued.

C. In addition to the annual debt report required by this section, the director of finance shall provide the metropolitan council with a report at the time a capital spending plan initial general obligation bond resolution is filed. Such report shall at a minimum include the following:

1. Total CSP amount.

2. Annual debt requirement projections for the CSP.

3. Percentage of CSP debt of general government expenditures.

4. The percentage of the annual operating budget appropriated for the payment of commercial paper and general obligation bond debt service for the current fiscal year and for each of the prior five fiscal years.

5. Total debt compared to assessed value after adoption of the CSP.

6. Projected capital spending plan amounts for each of the next five years if known. (Ord. BL2020-534 § 1, 2021; Amdt. 1 to Ord. BL2019-1602 § 1, 2019; Ord. BL2019-1602 § 1, 2019; Ord. BL2019-1487 § 1, 2019; Amdt. 1 to Ord. BL2014-696 § 1, 2014; Ord. BL2014-696 § 1, 2014)

5.04.115 Submission of finance communications from the State of Tennessee to the metropolitan council.

A. Copies of all financial communications from the State of Tennessee to the metropolitan government that are a disclosable public record under T.C.A. § 10-7-503 shall be submitted to the director of the metropolitan council office within seven days of receipt, provided that such communications that reflect negatively on the finances of the metropolitan government shall also be emailed directly to the councilmembers within seven days of receipt.

B. For purposes of this section, the following terms have the following meanings:

"Financial communications" means all written and electronic communications pertaining to the financial status, revenues, expenses, fees or service charges of the metropolitan government and any of its departments, boards, commissions, offices, and agencies other than routine correspondence regarding grant awards previously approved by the metropolitan council and grant applications.

"Communications that reflect negatively" includes without limitation any notice or threat of an administrative proceeding initiated by the state against the metropolitan government, any order issued in any such administrative proceeding, any communication that disapproves any request related to the metropolitan government's finances, any communication disapproving or raising questions about any operating or capital budget of the metropolitan government, and any communication that reflects or discusses any material adverse change in the financial condition of the metropolitan government.

C. The department head for the applicable department, board, commission, office, or agency shall be responsible for ensuring such communication is submit-

ted to the director of the council office as required by this section. (Amdt. 1 to Ord. BL2019-43 § 1, 2019; Ord. BL2019-43 § 1, 2019)

5.04.120 Acceptance of donations.

A. All departments, boards, and commissions of the metropolitan government that do not have independent authority to accept donations may accept and expend donations with a value of less than or equal to seven thousand, five hundred dollars, exclusive of donations of real property or interests in real property.

B. All departments, boards, and commissions of the metropolitan government that do not have independent authority to accept donations may accept donations with a value greater than seven thousand, five hundred dollars, exclusive of donations of real property or interests in real property, with the approval of the metropolitan council by resolution.

C. A resolution filed with the metropolitan council for the approval of a donation, exclusive of donation of real property or interests in real property, must contain the following information:

1. If a donation from an individual or individuals, the name of the individual or individuals.

2. If a donation from a group or legal entity:

a. The legal name of the entity;

b. The names of any officers of the organization;

c. A description of the organization and its mission; and

d. The organization's website, if applicable. (Ord. BL2022-1251 § 1, 2022; Ord. BL2014-818 § 2, 2014)

Editor's note—Ord. BL2014-818 § 2, approved July 17, 2014, added provisions designated as § 5.04.100. At the editor's discretion, to prevent duplication of section numbers, said provisions were included herein as § 5.04.120.

5.04.130 Merit-based grant program.

Subject to the availability of funds, the metropolitan government shall initiate and administer a merit-based grant program awarded by the Administration to Nashville nonprofit organizations. Grants shall be awarded according to compliance requirements established by the metropolitan government. (Amdt. 1 to Ord. BL2017-905 § 1, 2017; Ord. BL2017-905 § 1, 2017)

5.04.140 Prohibition on use of real property proceeds.

A. Proceeds from the sale of real property owned by the metropolitan government shall not be used for operating expenses of the metropolitan government.

B. Proceeds from the sale of real property owned by the metropolitan government, other than real property acquired pursuant to section 67-5-2501 of the Tennessee Code Annotated, shall not be relied upon as a funding source for operating expenses in any proposed operating budget.

C. Any proceeds from the sale of real property owned by the metropolitan government, other than real property acquired pursuant to section 67-5-2501 of the Tennessee Code Annotated, shall be used exclusively for the payment of debt service or the purchase other real property.

D. This section is not intended to interfere with the procedures for the disposition of property for the Metropolitan Government pursuant to Chapter 2.24, Part II, of the Metropolitan Code of Laws. (Amdt. 1 to Ord. BL2018-1283 § 1, 2018; Ord. BL2018-1283 § 1, 2018)

5.04.150 Cost itemization for capital projects.

A. The department of finance shall develop a Capital Project Cost Itemization Form to be completed for all proposed capital projects with an estimated total value greater than five million dollars. Such form shall itemize the present value full projected costs, allowing for local market cost escalation, including, but not limited to, the following costs, as applicable:

1. Land acquisition;
2. Environmental compliance;
3. Temporary relocation;
4. Architectural, engineering, and design;
5. Construction;
6. Furniture, fixture, and equipment;
7. Infrastructure improvement;
8. New and supporting technology;
9. Utility relocation and related costs;
10. Estimated operating budget impact; and
11. Other anticipated project costs.

B. The Capital Project Cost Itemization Form shall be completed by all departments, agencies, authorities, and other entities and delivered to the department of finance and the mayor for review prior to the inclusion of any capital project in an initial resolution required by Title 9, Chapter 21 of the Tennessee Code Annotated authorizing the issuance of bonds.

C. Any initial resolution required by Title 9, Chapter 21 of the Tennessee Code Annotated authorizing the issuance of bonds shall include:

1. An itemized list by categories of capital projects for which the bonds will be issued, and including a total amount not to be exceeded for each category;

2. An itemized list of each capital project for which the bonds will be issued that includes the Capital Improvements Budget project number and a total amount not to be exceeded for each capital project; and

3. A completed Capital Project Cost Itemization Form for each included capital project with an estimated total value greater than five million dollars.

D. The requirements of Section 5.04.150(A)—(C) shall not apply to capital projects that are: (1) limited solely to preliminary project planning and/or feasibility costs; or (2) funded exclusively by an enterprise fund, water or sewer rates, or other fees paid to the metropolitan government. (Ord. BL2019-77 § 1, 2019)

5.04.160 Music City Center PILOTs funding affordable and workforce housing.

A. Revenues received by the metropolitan government from The Convention Center Authority of the Metropolitan Government of Nashville and Davidson County for its payments in lieu of ad valorem property taxes for the Music City Center shall be deposited into a separate fund and shall be used solely for the purposes of funding affordable and workforce housing initiatives within the boundaries of the metropolitan government, consisting of the following:

i. the Barnes Fund for Affordable Housing,

ii. the Housing Incentive Pilot Program (or subsequent iterations thereof), with annual appropriations limited to five hundred thousand dollars in any fiscal year, and

iii. other initiatives addressing affordable and workforce housing may be added only as amended by Resolution and included in an annual operating budget as approved by the metropolitan council.

B. "Affordable housing" and "workforce housing" shall mean housing as defined in T.C.A. § 5-9-113. For the purpose of this Chapter, the payments in lieu of ad valorem property taxes for the Music City Center shall be utilized for rental housing initiatives benefitting households with incomes at or below sixty percent of the area median income (with the exception of the Housing Incentive Pilot Program or subsequent iteration which may benefit renter households with incomes at or below eighty percent of the AMI), and to homeownership initiatives benefitting households with incomes at or below eighty percent of the AMI.

C. In conjunction with the preparation of the annual operating budget, in the fifth year following the effective date of this section, and every succeeding five-year period thereafter, the metropolitan finance department and the metropolitan planning department shall review the amount of the anticipated payment in lieu of ad valorem taxes for the Music City Center against affordable and workforce housing needs in Metropolitan Nashville and Davidson County. To the extent that the payment exceeds the funding needs for affordable housing and workforce housing initiatives, such departments shall notify and make a recommendation to the metropolitan council regarding the expenditure of such surplus funds.

D. This section shall not be construed as limiting the funding of affordable and workforce housing initiatives to the annual in lieu of ad valorem tax payment for the Music City Center or limiting the metropolitan council's authority to appropriate additional funds through the annual operating budget or capital spending plan to address the city's affordable and workforce housing needs. (Ord. BL2022-1381 § 1, 2022)

Editor's note—Ord. BL2022-1381 § 1, passed Nov. 1, 2022, becomes effective July 1, 2023.

Editor's note—Public Chapter 430 of the 2023 Public Acts invalidated this section by prohibiting the Convention Center Authority from using the revenues that were the source for its payments in lieu of ad valorem property taxes to fund affordable and workforce housing initiatives.

5.04.170 Fund balance reserve policy required.

A. Definitions. As used in this section:

1. "Debt service funds" shall mean the General Services District General Purposes Debt Service Fund, the Urban Services District General Purposes Debt Service Fund, and the General Services District School Purposes Debt Service Fund.

2. "Fund balance" shall mean the accumulated amount of excess revenues minus expenditures in a particular metropolitan government fund that is unrestricted as defined in the fund balance reserve policy document.

3. "Fund balance reserve policy" shall mean a written policy, recommended by the mayor and adopted by resolution of the metropolitan council, requiring the metropolitan government to maintain adequate fund balance in its respective operating funds and debt service funds that:

a. Provides funding in the event of disaster, emergency, or other similar unusual, unanticipated, or unforeseen expenditures;

b. Provides for sufficient cash flows for daily financial needs to account for fluctuations in revenue sources;

c. Provides funds that can be used to offset revenue declines as a result of an economic downturn;

d. Details the conditions upon which fund balance can be spent;

e. Restricts fund balance from being used for recurring expenses or to pay one-time expenses not of an emergent nature, provided that the excess fund balance above the amounts stated in the policy may be used for any one-time expense as approved by the metropolitan council; and

f. Plans for replenishment of fund balance if amounts fall below policy-target levels.

4. "Operating funds" shall mean the General Services District General Fund, the Urban Services District General Fund, and the General Purpose School Fund.

B. The metropolitan government, at all times, shall maintain a fund balance reserve policy.

C. Consistent with the provisions of the Metropolitan Charter, this section, and the adopted fund balance reserve policy, the mayor and metropolitan council may make appropriations from fund balance.

D. Compliance with the fund balance reserve policy, including an assessment of whether appropriate amounts of fund balance are being maintained, shall be reviewed by the department of finance as part of the preparation of the annual operating budget. Any amendments to the fund balance reserve policy shall be submitted to the metropolitan council for review and approval, which shall be by resolution.

E. The department of finance shall post the fund balance reserve policy on the publicly accessible portion of the metropolitan government's website. (Ord. BL2022-1632 § 1, 2023)

Editor's note—Ord. BL2022-1632, § 1, passed Jan. 17, 2023, set out provisions intended for use as § 5.04.160. At the editor's discretion, to prevent duplication of section numbers, these provisions have been included as § 5.04.170.

Chapter 5.06

TAX INCREMENT FINANCING

Sections:

5.06.010	**Definitions.**
5.06.020	**Capture of incremental tax revenues.**
5.06.030	**Allocation of incremental tax revenues.**
5.06.040	**Annual reporting.**
5.06.050	**Use of incremental tax revenues.**
5.06.060	**Additional plan requirements.**

5.06.010 Definitions.

As used in this chapter, unless the context otherwise requires:

1. "Administrative fee" means a fee of up to five percent of incremental tax revenues utilized to pay the documented reasonable and necessary expenses incurred by the tax increment agency in administering a plan, including a reasonable allocation of overhead expenses. Documentation of reasonable and necessary administrative expenses for which administrative fees are requested shall be submitted to the director of finance for review at the time the request for disbursement of incremental tax revenue is made by the tax increment agency.

2. "Debt service taxes" means for property located in the General Services District, that portion of property taxes designated by the metropolitan government property tax levy ordinance to be distributed to the General Services District Debt Service Fund and the School Debt Services Fund, and for property located in the Urban Services District, that portion of property taxes designated by the metropolitan government property tax levy ordinance to be distributed to the General Services District Debt Service Fund, the School Debt Services Fund and the Urban Services District Debt Service Fund.

3. "Debt service tax percentage" shall mean the percentage obtained by dividing the debt service taxes for the applicable year by the total taxes for the applicable year.

4. "Housing authority" means the metropolitan development and housing agency organized in accordance with Title 13, Chapter 20 of the Tennessee Code Annotated.

5. "Incremental tax revenues" means incremental property tax revenues to be allocated by the metropolitan government to a tax increment agency pursuant to applicable tax increment statutes.

6. "Industrial development board" means the industrial development board of the metropolitan government organized pursuant to Title 7, Chapter 53 of the Tennessee Code Annotated.

7. "Plan" means a redevelopment plan approved pursuant to title 13, chapter 20 of the Tennessee Code Annotated, or an economic impact plan approved pursuant to title 7, chapter 53 of the Tennessee Code Annotated.

8. "Plan area" means the area identified in any plan as being subject to such plan.

9. "Refinancing" means any renewal, restructuring, refunding, extension, or other modification of the terms of any loan or other debt obligation.

10. "Tax increment agency" means a housing authority or industrial development board.

11. "Tax increment statutes" means Title 7, Chapter 53, Title 9, Chapter 23, and Title 13, Chapter 20 of the Tennessee Code Annotated.

12. "TIF loan" means any loan or other debt obligation made to a tax increment agency pursuant to applicable tax increment statutes for which incremental tax revenues are pledged for payment of such loan or other debt obligation.

13. "TIF loan maturity date" means the earlier of the date that the TIF loan is paid in full, or the date specified in the TIF loan documents when the tax increment agency is no longer obligated to utilize incremental tax revenues for payment of debt service on the TIF loan; provided however, if the TIF loan has not been paid in full by the date specified in the loan documents and the tax increment agency elects to refinance the TIF loan to fully amortize the remaining unpaid principal balance, then the TIF loan maturity date shall be extended to the earlier of the date the refinanced TIF loan is paid in full or the date specified in the loan documents for the refinanced TIF Loan when the tax increment agency is no longer obligated to utilize incremental tax revenues for payment of debt service on the refinanced TIF loan.

14. "Total taxes" means, for property located in the General Services District, the property taxes designated by the metropolitan government property tax levy ordinance to be distributed to the General Services District General Fund, the School Fund, the General Services District Debt Service Fund and the School Debt Services Fund, and for property located in the Urban Services District, the property taxes designated by the metropolitan government property tax levy ordinance to be distributed to the General Services District General Fund, the School Fund, the General Services District Debt Service Fund, the School Debt Services Fund, the Urban Services District General Fund and the Urban Services District Debt Service

Fund. (Ord. BL2016-157 § 1, 2016)

5.06.020 Capture of incremental tax revenues.

From and after the effective date of this section, for all housing authority plans approved after July 1, 2006, the tax increment agency shall only collect the incremental tax revenues for properties that are being redeveloped unless the metropolitan council approves the collection and use of the incremental tax revenue for other properties within the plan area upon approval of a resolution receiving twenty-one affirmative votes. (Ord. BL2016-157 § 1, 2016)

5.06.030 Allocation of incremental tax revenues.

A. From and after the TIF loan maturity date for a TIF loan, any incremental tax revenues pledged to secure payment of the TIF loan and not needed to pay amounts to the holder of the TIF loan and not needed to pay any administrative fee shall be retained by the metropolitan government, or if received by a tax increment agency pursuant to tax increment statutes, shall be paid to the metropolitan government within thirty days of receipt thereof by the tax increment agency, unless the Metropolitan Council authorizes the tax increment agency by resolution receiving twenty-one affirmative votes to utilize the incremental tax revenues for a specific purpose permitted pursuant to tax increment statutes.

B. To the extent the tax increment agency elects to refinance a TIF loan which has the effect of extending a TIF loan maturity date, from and after the date of the refinancing, the tax increment agency shall only be entitled to receive tax increment revenues in an amount equal to the lower of: (a) five percent more the total annual debt service obligation before the refinancing; or (b) five percent more than the total annual debt service obligation after the refinancing. In the event of a refinancing, all tax increment revenue greater than this amount shall be retained by the metropolitan government, or if received by a tax increment agency pursuant to tax increment statutes, shall be paid to the metropolitan government within thirty days of receipt thereof by the tax increment agency, unless authorized by the metropolitan council by resolution receiving twenty-one affirmative votes.

C. For plans approved or amended after the effective date of this section, no incremental tax revenues for property in the plan area may be pledged as collateral for, or to support payment of, a loan or other debt obligation related to a project or property outside of the plan area without approval of the metropolitan council by resolution receiving twenty-one affirmative votes. (Ord. BL2016-157 § 1, 2016)

5.06.040 Annual reporting.

Not later than May 31 of each year, the tax increment agency shall submit an annual report to the metropolitan mayor, director of finance, and metropolitan council detailing the following information for each plan area:

1. An identification of each outstanding TIF loan, including the commencement date of the TIF loan, the principal balance, the stated or estimated TIF loan maturity date, the parcels from which incremental tax revenues are pledged to such TIF loan, the total taxes paid for each parcel during the preceding year, the incremental tax revenues applied toward the payment of the principal and interest of the TIF loan during the preceding year, the amount of any taxes retained by or payable to the metropolitan government for each parcel during the preceding year, whether the tax increment agency has entered into an interest rate hedge agreement, and, if so, the terms of such hedge agreement(s).
2. The amount of the incremental tax revenues from the plan area used to pay administrative fees during the preceding year incurred by the tax increment agency, and a description of the administrative costs incurred.
3. The total of all incremental tax revenues allocated to the tax increment agency during the preceding year.
4. The total of all outstanding TIF loans as of the end of the reporting period.
5. A summary of diversified business enterprise goals for projects receiving TIF loans, and actual diversified business enterprise participation results. (Ord. BL2019-1613 § 1, 2019; Ord. BL2016-157 § 1, 2016)

5.06.050 Use of incremental tax revenues.

All TIF loans authorized by a tax increment agency after the effective date of this section shall include provisions as follows:

1. Standard allocation of incremental tax revenues. The portion of incremental tax revenues that may be used to pay a TIF loan shall not be greater than seventy-five percent; provided however that the tax increment agency shall be entitled to increase or decrease this percentage pursuant to criteria set forth in a written policy adopted by the tax increment agency.
2. Debt service taxes allocated to metropolitan government. Notwithstanding anything to the contrary in Section 5.06.050(1) of the Metropolitan Code of Laws, under all circumstances the debt service taxes shall be retained by the metropolitan government, or if received by a tax increment agency pursuant to tax increment statutes, shall be paid to the metropolitan government before any incremental tax revenues may be

used to pay the principal and interest on TIF loans. The debt service taxes to be retained by or paid to the metropolitan government for each TIF loan shall be determined by multiplying the total taxes from all parcels generating incremental tax revenues pledged to secure the TIF loan by the debt service tax percentage applicable as of the date of the closing of the TIF loan. (Ord. BL2019-1630 § 1, 2019; Ord. BL2016-157 § 1, 2016)

5.06.060 Additional plan requirements.

All plans and amendments to plans approved after the effective date of this section shall include provisions as follows:

1. The plan shall comply with the requirements of Section 5.06.050 of the Metropolitan Code of Law, as amended from time to time.

2. Proceeds from all land sold by the tax increment agency shall be placed in a revolving fund where either: (a) the land was originally conveyed to the tax increment agency by the metropolitan government; or (b) the land was acquired in full, or in part, using such revolving fund assets. The revolving fund described in this section shall be designated to pay costs for acquisition of land in the plan area, for public improvements and facilities in the plan area, and for the implementation of the plan area where the land is located. The proceeds of such sale(s) shall not be used by the tax increment agency for projects or improvements in other plan areas without approval of the metropolitan council by resolution receiving twenty-one affirmative votes. The revolving fund will be held and managed by the tax increment agency. Any unexpended funds in the revolving fund at the termination of a plan will be deposited to the general fund of the metropolitan government.

3. There shall be a mandatory periodic assessment of the activities and improvements eligible for tax increment financing under the plan.

i. An assessment may be requested by the tax increment agency or the metropolitan council. The first assessment may be requested no earlier than seven years after the adoption of the plan, provided however that the assessment must be completed within ten years after the adoption of the plan. After the first assessment, subsequent assessments may be requested no earlier than seven years after the previous assessment, provided however that each subsequent assessment must be completed within ten years after the previous assessment.

ii. Each assessment shall include a review of the impact and goals of the plan. For an assessment to be considered complete, the tax increment agency and the metropolitan council must agree on the activities and improvements that are eligible for tax increment financing under the plan. The council's agreement shall be indicated by the passage of a resolution approved by a majority of the members to which the council is entitled.

iii. If any assessment is not timely completed as required in this section, the tax increment agency shall not approve any additional bonded or other indebtedness to be paid by incremental tax revenues under the plan, provided however that such a termination of new approvals shall not terminate the plan or have any impact on any previously approved TIF loans.

4. Either the tax increment agency or the metropolitan council may initiate a modification, change, or amendment to the plan subject to the approval of the other. If the metropolitan council initiates a modification, change, or amendment, the approval of the tax increment agency must be obtained before the third reading of the ordinance adopting such modification, change, or amendment. (Ord. BL2019-1630 § 1, 2019; Ord. BL2016-157 § 1, 2016)

Chapter 5.08

DEPOSITORIES FOR METROPOLITAN FUNDS

Sections:

5.08.010	**Legal depositories established.**
5.08.020	**Contracts with depositories—Authority of mayor.**
5.08.030	**Collateral security—Loss and default recovery.**
5.08.040	**Daily deposits—Authority of metropolitan treasurer.**
5.08.050	**Deposits from construction contractors—Custodial services.**

5.08.010 Legal depositories established.

All banks and trust companies whose principal offices and places of business are in the metropolitan government area, whether organized under the laws of the United States or chartered under the laws of the state, shall be legal depositories for the deposit of the money and funds of the metropolitan government. (Prior code § 15-1-26)

5.08.020 Contracts with depositories—Authority of mayor.

The mayor shall have authority to negotiate from time to time contracts on behalf of the metropolitan government with any and all of the banks and trust companies specified in Section 5.08.010, for periods of two years, for the deposit of the money and funds of the city and disbursement thereof, and for the payment to the metropolitan government, by the depository banks and trust companies, of interest on the daily balances, at the highest rate of interest which can be negotiated and contracted for with such banks and trust companies, computed and credited monthly. (Prior code § 15-1-27)

5.08.030 Collateral security—Loss and default recovery.

A. Each of the bank and trust company depositories mentioned in Section 5.08.020 shall deposit in an escrow account in a second bank or trust company for the benefit of the metropolitan government, as collateral security for such metropolitan government funds, bonds of the United States or any of its agencies, or obligations guaranteed by the United States or any of its agencies, the payment of which are insured by it and which are fully guaranteed both as to principal and interest by the United States; bonds of this state, bonds of other states with at least an "A" rating, including any revenue bonds issued by any agency of the State of Tennessee, specifically including institutions under the control of the state board of education, the board of trustees of the University of Tennessee, and bonds issued in the name of the state school bond authority; bonds of any county or municipal corporation of this state, including bonds payable from revenues (expressly excluding bonds of any road, levee or drainage district) upon which said municipal or county bonds there has been no default in the payment of interest more than thirty days upon any one installment of interest for the five years preceding the deposit of such county or municipal bonds; and loans to students guaranteed one hundred percent by the Tennessee educational loan corporation, during the dormant period of such loan or any bond issued under the provisions of Chapters 7-37 (T.C.A. § 7-37-101 et seq.) and 7-53 (T.C.A. § 7-53-101 et seq.) of Tennessee Code Annotated, that are rated "A" or higher by any nationally recognized rating service or any other collateral security as may be described in Tennessee Code Annotated, Section 5-8-201, as amended from time to time.

B. Any loss incurred by the metropolitan government by reason of failure by any bank or trust company to safely keep and account for metropolitan government funds and interest thereon shall be recovered by the metropolitan government from the bank or trust company and a sale of the securities pledged under this section.

C. In the case of default by any bank or trust company having a metropolitan government account of any type, the securities pledged under this section shall be sold by the person holding such securities; and payment of the proceeds of such sale shall be made to the metropolitan government to the extent of its interest, but such sale shall be without recourse as to the metropolitan government.

D. The face value of the collateral herein described shall be a sum ten percent in excess of the deposits to be secured thereby, less so much of any such amount as is protected by the Federal Deposit Insurance Corporation. (Ord. 90-1339 § 1 (15-1), 1990; prior code § 15-1-28 (part))

5.08.040 Daily deposits—Authority of metropolitan treasurer.

The metropolitan treasurer shall deposit daily all money and funds of the metropolitan government coming into his hands with the legal depositories, with whom contracts have been entered into by the metropolitan government as provided in this chapter and who have complied with the provisions of this chapter concerning security collateralization; and the metropolitan treasurer shall make such daily deposits to the credit of the proper fund of the metropolitan government, taking from such

legal depository a property receipt therefor. (Prior code § 15-1-28 (part))

5.08.050 Deposits from construction contractors—Custodial services.

A. The metropolitan treasurer is designated as the appropriate official of the metropolitan government to receive deposits from construction contractors, pursuant to the provisions of Tennessee Code Annotated, Section 12-4-108.

B. The metropolitan treasurer is authorized and required to enter into contracts with state and/or national banks having a trust department located in Tennessee for custodial care and servicing of any such securities deposited pursuant to said code section. Such services shall include the safekeeping of said securities and of all services required to effectuate the purpose of said code section. (Ord. 90-1339 § 1 (15-2), 1990; prior code § 15-1-31.1)

Chapter 5.10

PUBLIC ART FINANCING

Sections:

5.10.010	**Definitions.**
5.10.020	**Sources of funding.**
5.10.030	**Duties of the commission.**

5.10.010 Definitions.

"Commission" means the Metropolitan Nashville Arts Commission.

"Construction project" means any capital project, approved in the capital improvements budget and included in an initial resolution determining to issue general obligation bonds of the Metropolitan Government of Nashville and Davidson County involving the building or erection of any public building, structure, park, or parking facility, which project is funded in compliance with federal and state law. Construction project shall also include the reconstruction, replacement, extension, repairing, betterment or improvement of any public building, structure, park or parking facility where the cost of the improvement exceeds fifty percent of the value of the building, structure, park, or parking facility before the reconstruction, replacement, repair, or improvement. "Construction project" shall also include eligible capital projects being undertaken by the metropolitan government in conformance with agreements in existence on the effective date of this ordinance.

"Public art guidelines" means the guidelines required by Section 5.10.030 of this chapter.

"Public art project" means a project funded as part of a general obligation bond issue or through the commercial paper program that has been approved in accordance with the public art guidelines. (Ord. BL2020-185 § 1, 2020; Ord. BL2000-250 § 1 (part), 2000)

5.10.020 Sources of funding.

A. If a construction project is initially funded through the metropolitan government's commercial paper program with bond anticipation notes, one percent of the net expenditure spent to fund such construction project each calendar quarter shall be made available to fund public art by the end of the following calendar quarter. Such funds may be expended, in conformance with existing agreements and state and federal law, on the building, erection, reconstruction, replacement, extension, repairing, betterment, or improvement of public art projects prescribed by the public art guidelines.

B. One percent of the net proceeds of any general obligation bond issued to fund construction project(s) not initially funded with commercial paper bond anticipation notes shall be deposited and set aside to fund public art. Proceeds so deposited may be expended, in conformance with existing agreements and state and federal law, on the building, erection, reconstruction, replacement, extension, repairing, betterment, or improvement of public art projects prescribed by the public art guidelines. If funds were previously made available with respect to a construction project funded through the commercial paper program as outlined in Section 5.10.020A. above, then no deposit of general obligation bond net proceeds shall be permitted as provided hereinabove to fund public art projects.

C. If one percent of a particular bond issue or of funds made available through the commercial paper program is insufficient to fund a public art project, proceeds so deposited or made available may, in conformance with applicable state and federal law, accumulate until they are sufficient to fund a public art project.

D. Proceeds deposited or made available for public art projects pursuant to this chapter may be used for architectural and engineering design associated with the public art project.

E. In addition to general obligation bond funds and commercial paper program funds, donations from private persons or entities and state or federal monies may be expended on public art projects in accordance with the public art guidelines. No part of the general fund reserve fund of the general services district ("four percent funds") may be used to finance public art projects. (Ord. BL2020-185 § 2, 2020; Ord. BL2000-250 § 1 (part), 2000)

5.10.030 Duties of the commission.

The commission shall:

A. Adopt public art guidelines, which shall include criteria for accepting donations or gifts, both cash and tangible art, a method or methods for the selection of artists or public art projects and for placement of public art projects.

B. Acting through the department of finance, division of purchasing, purchase public art projects or commission the design, execution and/or placement of public art projects. The commission shall consult with the department responsible for a particular construction project regarding the design, execution and/or placement of a public art project in connection with such construction project.

C. Require that any proposed public art project requiring operation or maintenance expenses receive prior approval of the director of finance as to availability of funds, the department head responsible for such

operation or maintenance and approval by the metropolitan council of funds appropriate to cover such operation and maintenance expenses as required by law.

D. Promulgate rules and regulations consistent with this ordinance to facilitate the implementation of its responsibilities hereunder, which rules and regulations shall be approved by a resolution approved by a majority of the metropolitan council. (Ord. BL2000-250 § 1 (part), 2000)

Chapter 5.11

TREE CANOPY RESTORATION AND MAINTENANCE—FINANCING

Sections:

5.11.010	**Definitions.**
5.11.020	**Sources of funding.**
5.11.030	**Allocation of funding**
5.11.040	**Funding cap.**
5.11.050	**Duties of the metro water services stormwater division.**
5.11.060	**Sunset provision.**

5.11.010 Definitions.

"Construction project" means any capital project, approved in the capital improvements budget and included in an initial resolution determining to issue general obligation bonds of the Metropolitan Government of Nashville and Davidson County involving the building or erection of any public building, structure, park, or parking facility, which project is funded in compliance with federal and state law. Construction project shall also include the reconstruction, replacement, extension, repairing, betterment or improvement of any public building, structure, park, or parking facility where the cost of the improvement exceeds fifty percent of the value of the building, structure, park, or parking facility before the reconstruction, replacement, repair, or improvement. "Construction project" shall also include eligible capital projects being undertaken by the metropolitan government in conformance with agreements in existence on the effective date of this ordinance.

"Stormwater division" means the Stormwater Division of the Metropolitan Water and Sewer Services Department.

"Tree canopy restoration and maintenance guidelines" mean the guidelines referenced in Section 5.11.030 of this chapter.

"Tree canopy restoration and maintenance project" means a project funded through reserved funding derived from annual building permits revenues, grading permits revenues, or as part of a general obligation bond issue or through the commercial paper program as identified in Section 5.11.020 of this chapter, and which has been approved in accordance with tree canopy restoration and maintenance guidelines. (Ord. BL2021-972 § 1, 2021, eff. 7-1-2022)

5.11.020 Sources of funding.

A. Building permit revenues:

1. An allocation from the general fund equivalent to one percent of the annual revenues budgeted by the Metropolitan Government of Nashville and Davidson County for building permits issued pursuant to Chapter 16.28 of the Metropolitan Code of Laws for new construction or substantial improvements shall be deposited, set aside, and made available to fund tree canopy restoration and maintenance by the end of the following calendar quarter, subject to annual appropriations.

2. Proceeds so deposited may be expended, in conformance with existing agreements and state and federal law, toward the planting, replacement, irrigation, maintenance, betterment, or improvement of trees, tree planting projects, or tree canopy improvement projects, as prescribed by stormwater division of metro water services.

B. Grading permit revenues:

1. An allocation from the general fund equivalent to one percent of the annual revenues budgeted by the Metropolitan Government of Nashville and Davidson County for grading permits issued pursuant to Chapter 15.64 of the Metropolitan Code of Laws for new construction or substantial improvements shall be deposited, set aside, and made available to fund tree canopy restoration and maintenance by the end of the following calendar quarter, subject to annual appropriations.

2. Proceeds so deposited may be expended, in conformance with existing agreements and state and federal law, toward the planting, replacement, irrigation, maintenance, betterment, or improvement of trees, tree planting projects, or tree canopy improvement projects, as prescribed by stormwater division of metro water services.

C. General obligation bonds issued to fund construction projects

1. An allocation from the general fund equivalent to one percent of the preceding five-year average of net proceeds of general obligation bonds issued to fund construction project(s) not initially funded with commercial paper bond anticipation notes shall be set aside and made available to fund tree canopy restoration and maintenance by the end of the following calendar quarter, subject to annual appropriations.

2. If a construction project is initially funded through the metropolitan government's commercial paper program with bond anticipation notes, an allocation from the general fund equivalent to one percent of the preceding five-year average net expenditures spent to fund such construction projects each calendar quarter shall be set aside and made available to fund tree canopy restoration and maintenance by the end of the following calendar quarter, subject to annual appropriations.

3. Proceeds so made available may be expended, in conformance with existing agreements and state and federal law, toward the planting, replacement, irrigation, maintenance, betterment, or improvement of trees, tree planting projects, or tree canopy improvement projects, as prescribed by stormwater division of metro water services. If funds are made available with respect to a construction project funded through the commercial paper program as outlined in this section, then no set-aside equivalent to one percent of any general obligation bond net proceeds shall be permitted as provided in Subsection C. 1 to fund tree canopy restoration and maintenance.

4. If an allocation pursuant to subsection C.1 or C.2 above is insufficient to fund a particular tree canopy restoration or maintenance project, proceeds so set aside or made available may, in conformance with applicable state and federal law, accumulate until they are sufficient to fund such project(s).

5. In addition to allocations based upon general obligation bond funds and commercial paper program funds, donations from private persons or entities and state or federal monies may be expended on tree canopy restoration or maintenance projects in accordance with guidelines provided by the stormwater division of metro water services. No part of the general fund reserve fund of the general services district ("four percent funds") may be used to finance tree canopy restoration or maintenance projects. (Ord. BL2021-972 § 1, 2021, eff. 7-1-2022)

5.11.030 Allocation of funding

Funding derived from the sources identified in Section 5.11.020 which is deposited, set aside, and made available to fund tree canopy restoration and maintenance shall be allocated, subject to annual appropriations, to qualified private operational partners in the form of grants or agreements to fund initiatives by the metropolitan government through the metro water services department—Stormwater division. (Ord. BL2021-972 § 1, 2021, eff. 7-1-2022)

5.11.040 Funding cap.

The annual amount of funding derived from the sources identified in Section 5.11.020 to be deposited, set aside, and made available to fund tree canopy restoration and maintenance shall not exceed two million five hundred thousand dollars per fiscal year. Should the funding generated from the sources identified in Section 5.11.020 exceed this cap in any fiscal year, the surplus funds shall be restored to the general fund. (Ord. BL2021-972 § 1, 2021, eff. 7-1-2022)

5.11.050 Duties of the metro water services stormwater division.

The metro water services stormwater division shall:

A. Adopt tree canopy restoration guidelines, which shall include a method or methods for the selection of tree planting projects and requirements for tree maintenance.

B. Procure any tree planting and maintenance services, landscape design services, and any other services required for the maintenance and restoration of the tree canopy.

C. Allocate funding derived from the sources identified in Section 5.11.020 for tree canopy restoration and maintenance on private properties to qualified private operational partners in the form of grants and/or agreements to fund initiatives. The operational partner may grant funds to additional non-profit organizations for the planting of trees on private properties.

D. Promulgate rules and regulations consistent with this ordinance to facilitate the implementation of its responsibilities hereunder, which rules and regulations shall be approved by a resolution approved by a majority of the metropolitan council. (Ord. BL2021-972 § 1, 2021, eff. 7-1-2022)

5.11.060 Sunset provision.

The provisions of this chapter shall expire and be null and void on June 30, 2023 ("sunset date") unless extended by resolution of the metropolitan council. This provision is included to ensure that the effectiveness and necessity of this chapter is reviewed by the metropolitan council after its adoption. If the provisions of this chapter are not extended by resolution of the metropolitan council before the sunset date, no funding allocations shall be deposited, set aside, or made available to fund tree canopy restoration and maintenance after the sunset date. This sunset provision shall not operate to terminate any existing grant agreement in effect as of the sunset date. (Ord. BL2021-972 § 1, 2021, eff. 7-1-2022)

Division II. Taxes

Chapter 5.12

HOTEL OCCUPANCY PRIVILEGE TAX

Sections:

Article I. General Regulations

5.12.010 Definitions.
5.12.020 Tax imposed—Amount.
5.12.030 Tax separate from other taxes.
5.12.040 Collection—Invoice procedure.
5.12.050 Remittance—Accounting expense deduction.
5.12.060 Distribution of proceeds.
5.12.070 Records—Inspection.
5.12.080 Offer to absorb tax prohibited.
5.12.090 Delinquent payments—Penalties and interest.
5.12.100 Administration and enforcement.

Article II. Additional Hotel Occupancy Tax for Convention Center

5.12.110 Reserved.
5.12.120 Additional hotel occupancy privilege tax for convention center authorized.
5.12.130 Distribution of additional convention center hotel occupancy tax funds.
5.12.140 Termination of additional convention center hotel occupancy privilege tax.

Article III. Additional Hotel Occupancy Tax for Enclosed Stadium

5.12.150 Additional hotel occupancy tax for enclosed stadium authorized.

Article I. General Regulations

5.12.010 Definitions.

As used in this chapter, unless a different meaning clearly appears from the context, the following definitions shall apply:

"Consideration" means the consideration charged, whether or not received, for the occupancy in a hotel valued in money whether to be received in money, goods, labor or otherwise, including all receipts, cash, credits, property and services of any kind or nature without any deduction therefrom whatsoever. Nothing in this definition shall be construed to imply that consideration is charged when the space provided to the person is complimentary from the operator and no consideration is charged to or received from any person.

"Hotel" means any structure, or any portion of any structure, which is occupied or intended or designed for occupancy by transients for dwelling, lodging or sleeping purposes within the area of the jurisdiction of the metropolitan government, and includes any hotel, inn, tourist court, tourist camp, tourist cabin, motel or any place in which rooms, lodgings or accommodations are furnished to transients for a consideration.

"Large hotel" means a hotel with at least one thousand rooms adjacent to or operated in connection with exhibition hall space of at least one hundred thousand square feet.

"Metropolitan government" means the Metropolitan Government of Nashville and Davidson County.

"New rooms" means any rooms of a large hotel which first become available for occupancy by transients on or after January 1, 1994.

"Occupancy" means the use or possession or the right to the use or possession, of any room, lodgings or accommodations in a hotel for a period of less than thirty continuous days.

"Operator" means the person operating the hotel whether as owner, lessee or otherwise.

"Person" means any individual, firm, partnership, joint venture, association, social club, fraternal organization, joint stock company, corporation, estate, trust, business trust, receiver, trustee, syndicate or any other group or combination acting as a unit.

"Premier tourist destination area" means a geographical area of the metropolitan government that contains a large hotel, a theme park, golf courses, water theme parks, entertainment complexes, restaurants and other tourist-related activities and businesses.

"Tax collection official" means the metropolitan department of finance or its designate or the county clerk.

"Tourism" means the planning and conducting of programs of information and publicity designed to attract to the area within the jurisdiction of the metropolitan government tourists, visitors and other interested persons from outside the area and also encourage and coordinate the efforts of other public and private organizations or groups of citizens to publicize the facilities and attractions of the area for the same purposes. It also means acquisition, construction and remodeling of facilities useful in the attraction and promoting of tourist, conventions and recreational business.

"Tourist commission" means a seven-person body established subject to the same local organic law as other boards and commissions established by the Charter of the metropolitan government.

"Transient" means any person who exercises occupancy or is entitled to occupancy for any rooms, lodgings or accommodations in a hotel for a period of less than thirty days. (Ord. 96-166 § 1, 1996; Ord. 93-845 § 1, 1993; prior code § 15-1-45)

5.12.020 Tax imposed—Amount.

There is levied a privilege tax upon the privilege of occupancy in any hotel of each transient in an amount of six percent of the consideration charged by the operator. The tax so imposed is a privilege tax upon the transient occupying such room and is to be collected and distributed as provided in this chapter. The proceeds from such tax shall be retained by the metropolitan government and distributed in accordance with T.C.A. § 7-4-110(b). The tax so imposed is a privilege tax upon the transient occupying the room of a hotel located within the territory of the metropolitan government. (Ord. BL2007-1557 § 1, 2007; Ord. 2002-1049 § 1, 2002; Amdt. 1 with Ord. 99-1678 § 2, 1999; prior code § 15-1-46)

5.12.030 Tax separate from other taxes.

The tax levied in this chapter shall be in addition to all other taxes levied or authorized to be levied whether in the form of excise, license or privilege taxes, and shall be in addition to all other fees and taxes now levied or authorized to be levied. (Prior code § 15-1-55)

5.12.040 Collection—Invoice procedure.

The occupancy privilege tax shall be added by each and every operator in each invoice prepared by the operator for occupancy of his hotel, such invoice to be given directly or transmitted to the transient, and shall be collected by such operator from the transient and remitted to the metropolitan department of finance. (Prior code § 15-1-47)

5.12.050 Remittance—Accounting expense deduction.

A. Remittance to Tax Collection Official. The tax levied shall be remitted by all operators who lease, rent or charge for any rooms to the metropolitan department of finance not later than the twentieth day of each month next following collection from the transient. The operator is required to collect the tax from the transient at the time of the presentation of the invoice for such occupancy whether prior to occupancy as may be the custom of the operator; the obligation to the metropolitan government entitled to such tax shall be that of the operator.

B. Deduction for Accounting Expense. For the purpose of compensating the operator in accounting for and remitting the tax levied by this chapter, the operator shall be allowed two percent of the amount of tax due and accounted for and remitted to the metropolitan department of finance in the form of a deduction in submitting his report and paying the amount due by him, provided the amount due was not delinquent at the time of payment. (Ord. BL2012-156 § 1, 2012; Ord. 96-166 § 2, 1996; prior code § 15-1-48)

5.12.060 Distribution of proceeds.

A. Except for the taxes levied pursuant to T.C.A. § 7-4-102(c), the proceeds from the tax levied in this chapter shall be retained by the metropolitan government and distributed as follows:

(1) One-third of the proceeds in its entirety shall be used for the direct promotion of tourism;

(2) One-third of the proceeds in its entirety shall be maintained in a reserve fund to be used exclusively for the purpose of modifying, constructing, financing and operating a convention center;

(3) One-sixth of the proceeds shall be used for tourist-related activities which may include funding a convention center; and

(4) One-sixth of the proceeds shall be deposited in the general fund of the metropolitan government. Effective July 1, 2015, the portion of transient occupancy privilege tax revenue deposited into the general fund that was generated by short term rental properties regulated under Title 6 of the Metropolitan Code shall be exclusively dedicated for appropriation to the Barnes Fund for Affordable Housing established pursuant to Substitute Ordinance No. BL2013-487.

B. If the total tax collections received pursuant to this section and dedicated to the purposes contained in subsections A(1), A(2) and A(3) exceed the amounts necessary to fund the obligations thereunder, the excess shall be placed in a reserve fund and expended only for tourist-related activities.

C. The proceeds from the tax authorized by T.C.A. § 7-4-102(c) shall be retained by the metropolitan government and be used exclusively for tourist-related activities within the area of the metropolitan government.

D. Proceeds of this tax may not be used to provide a subsidy in any form to any hotel or motel. (Ord. BL2020-187 § 5, 2020; Ord. BL2017-583 § 1, 2017; Ord. BL2015-1056 § 1, 2015; Amdt. 1 to Ord. BL2007-1557 § 2, 2007; Ord. BL2007-1557 § 2, 2007; Ord. 2002-1049 § 2, 2002; Ord. 99-1678 § 2, 1999; Ord. 93-845 § 2, 1993; prior code § 15-1-54)

5.12.070 Records—Inspection.

It shall be the duty of every operator liable for the collection and payment of any tax imposed by this act to keep and preserve for a period of three years all records

necessary to determine the amount of such tax, which records the tax collection official shall have the right to inspect at all reasonable times. (Prior code § 15-1-51)

5.12.080 Offer to absorb tax prohibited.

No operator of a hotel shall advertise or state in any manner whether directly or indirectly that the tax or any part thereof will be assumed or absorbed by the operator, or that it will be added to the rent, or that, if added, any part will be refunded. (Prior code § 15-1-49)

5.12.090 Delinquent payments—Penalties and interest.

Taxes collected by an operator which are not remitted to the tax collection official on or before the due dates are delinquent. An operator shall be liable for interest on such delinquent taxes from the due date at the rate of eight percent per year, and in addition, a penalty of one percent for each month or fraction thereof such taxes are delinquent. Such interest and penalty shall become a part of the tax required in this chapter to be remitted. Wilful refusal of an operator to collect or remit the tax or wilful refusal of a transient to pay the tax imposed is unlawful and shall constitute a misdemeanor. Any fine levied herein shall be applicable to each individual transaction involving lodging services paid by a customer to the operator in those cases when the operator fails or refuses to pay the tax payable. (Prior code § 15-1-50)

5.12.100 Administration and enforcement.

A. In administering and enforcing the provisions of this chapter, the tax collection official shall have, as additional powers, those powers and duties with respect to collection of taxes provided in Title 67 of Tennessee Code Annotated or otherwise provided by law.

B. Upon any claim of illegal assessment and collection, the taxpayer shall have the remedy provided in Tennessee Code Annotated, Section 67-1-911, it being the intent of this act that the provisions of law which apply to the recovery of state taxes illegally assessed and collected be conformed to apply to the recovery of taxes illegally assessed and collected under the authority of this act, provided the tax collection official shall possess those powers and duties as provided in Tennessee Code Annotated, Section 67-1-707, with respect to the adjustment and settlement with taxpayers of all errors of taxes collected by him under the authority of this act and to direct the refunding of same. Notice of any tax paid under protest shall be given to the tax collection official and suit for recovery shall be brought against the tax collection official. (Ord. 90-1339 § 1 (15-7), 1990; prior code § 15-1-52)

Article II. Additional Hotel Occupancy Tax for Convention Center

5.12.110 Reserved.

Editor's note—Ord. BL2012-156, § 2, passed June 12, 2012, repealed § 5.12.110, which pertained to definitions and derived from Ord. BL2007-1557 § 3, 2007.

5.12.120 Additional hotel occupancy privilege tax for convention center authorized.

In addition to any other tax or fee imposed pursuant to this chapter on the occupancy of the hotel room, there is hereby authorized an additional privilege tax of two dollars and fifty cents upon the occupancy of each hotel room within the territory of the metropolitan government. The tax so imposed is a privilege tax upon each occupied room for each night of occupancy and shall be collected by the department of finance and distributed as provided in this article. (Ord. BL2012-156 § 3, 2012; Ord. BL2008-251 § 1, 2008; Ord. BL2007-1557 § 3, 2007)

5.12.130 Distribution of additional convention center hotel occupancy tax funds.

A. Revenues up to two dollars received by the metropolitan government from the privilege tax imposed pursuant to this article shall be deposited into a metropolitan government fund entitled "The Convention Center Fund" and shall be used for the purpose of paying costs incurred in modification or construction of a publicly-owned convention center in excess of four hundred million dollars and costs located within the territory of the metropolitan government. Such revenues may also be used for the operation, promotion, management and marketing of such a convention center. If the revenues from such surcharge or tax in any fiscal year exceed the total of such debt service requirements from that year, such surplus revenue thus accruing shall be retained by the metropolitan government as a reserve fund for future convention center debt service.

B. Revenues which exceed two dollars received by the metropolitan government from the privilege tax imposed pursuant to this article shall be deposited into a metropolitan government fund entitled "The Event and Marketing Fund." The Fund expenditures shall be administered by a committee which, for administrative purposes, shall be attached to the Nashville Convention & Visitors Corporation, or similar entity that has been approved by the metropolitan council and the mayor, and is under contract to provide tourism and convention sales and marketing services to the Metropolitan Government of Nashville and Davidson County. The committee

governing the fund shall have six members and a chair who votes only to break a tie. The members of this committee shall be appointed by the mayor. Members of the committee shall include at least one person nominated by a hotel and lodging association located in Davidson County, one person from the hospitality industry, one representative from a hotel corporation that operates a single hotel within Davidson County with an excess of two thousand nine hundred rooms, two members of the public, one person who owns or operates a business within the downtown central business improvement district, and a chair to be selected by the mayor. The administration of funds shall continue until the expiration of said contract, including any extensions or renewal thereof, or the expiration of the additional hotel occupancy tax act, whichever occurs first. All expenditures from "The Event and Marketing Fund" shall be subject to the approval of the Director of Finance of the Metropolitan Government of Nashville and Davidson County. An audited financial statement from the committee shall be supplied annually to the finance director and the metropolitan council.

C. Revenues which exceed two dollars received by the metropolitan government from the privilege tax imposed pursuant to this article shall be used by the committee to support events or projects which are found by the committee to have a cumulative total economic impact on the Metropolitan Government of Nashville and Davidson County of greater than five million dollars. (Amdt. 1 to Ord. BL2018-1172 § 1, 2018; Ord. BL2018-1172 § 1, 2018; Ord. BL2008-251 § 2, 2008; Ord. BL2007-1557 § 3, 2007)

5.12.140 Termination of additional convention center hotel occupancy privilege tax.

A. The additional hotel occupancy privilege tax up to two dollars authorized by this article shall terminate once the total bonded indebtedness incurred for the modification or construction of such convention center facility by the metropolitan government has been paid in full as to bond principal and interest, including the expenses of bond sale or sales, and the metropolitan council repeals the provisions of this article. Provided, however, that any funds and interests remaining in the reserve fund after all obligations imposed under the provision of this part have been fulfilled, shall be used by the governmental board or agency responsible for the operation of the convention center for use by it in the operation, promotion and advertisement of the convention center facilities.

B. The additional hotel occupancy privilege tax which exceeds two dollars authorized by this article shall terminate six years from May 21, 2020. (Ord. BL2020-186 § 1, 2020; Ord. BL2014-728 § 1, 2014; Ord. BL2008-251 § 3, 2008; Ord. BL2007-1557 § 3, 2007)

Article III. Additional Hotel Occupancy Tax for Enclosed Stadium

5.12.150 Additional hotel occupancy tax for enclosed stadium authorized.

In addition to any other tax or fee imposed pursuant to this chapter, there is hereby levied an additional privilege tax of one percent of the consideration charged by the operator for the occupancy of each hotel room within Davidson County. The tax so imposed is a privilege tax upon each occupied room for each night of occupancy and shall be collected by the department of finance. The proceeds from such tax shall be distributed to the Sports Authority in accordance with Tenn. Code Ann. § 67-4-1415. The privilege tax hereby levied shall expire on January 1, 2024, unless the Sports Authority shall have theretofore issued its revenue bonds as contemplated by the Term Sheet (the "bonds"). (Ord. BL2022-1529 § 1, 2022)

Editor's note—Per Amdt. 1 to Ord. BL2022-1529, § 4 states: This ordinance shall take effect from and after approval of final, binding documents to construct the Stadium, the welfare of The Metropolitan Government of Nashville and Davidson County requiring it.

Chapter 5.14

PRIVILEGE TAX ON SALE OF TICKETS TO EVENTS AT MUNICIPAL STADIUM

Sections:

5.14.010	**Definitions.**
5.14.020	**Tax Imposed.**
5.14.030	**Collection.**
5.14.040	**Distribution proceeds.**
5.14.050	**Intent of provisions.**

5.14.010 Definitions.

As used in this chapter, unless the context otherwise requires:

"Event" means any activity with a paid admission fee that takes place primarily on or directly above the playing surface at the municipal stadium.

"Metropolitan government" means the Metropolitan Government of Nashville and Davidson County.

"Municipal stadium" means a structure:

1. With seats for not less than thirty thousand spectators;

2. Constructed after July 7,1977;

3. Used primarily for sporting events and other related activities; and

4. Currently financed or was financed by general obligation bonds, revenue bonds or other indebtedness issued by the metropolitan government or the sports authority.

"Municipal soccer stadium" means a structure with seats for not less than thirty thousand spectators, which is constructed after July 7, 1977, and which is used primarily for professional soccer events and other related activities and is currently financed or was financed by general obligation bonds, revenue bonds or other indebtedness issued by a metropolitan government or any public instrumentality of a metropolitan government.

"Primary tenant" means the lessee of the municipal stadium from the metropolitan government or the sports authority.

"Promoter" means any person, and any agent or representative of such person, engaged in the sale or offering for sale of tickets to an event.

"Sports authority" means the Sports Authority of the Metropolitan Government of Nashville and Davidson County.

"Tax" means the tax levied in this chapter. (Ord. BL2018-1289 § 2, 2018; Ord. BL2009-545 § 1, 2009)

5.14.020 Tax Imposed.

A. There is levied a privilege tax upon the privilege of attending any event at the municipal stadium. The amount shall be as follows:

1. Effective for events scheduled to occur from June 14, 2010, through July 31, 2013, an amount of two dollars.

2. Effective for events scheduled to occur on or after August 1, 2013, an amount of three dollars.

3. To the extent the tax exceeds ten percent of the consideration charged for a ticket, the tax will be limited to ten percent of the ticket price.

B. Municipal soccer stadium.

1. In lieu of the provisions of subsection A. of this section, there is levied a privilege tax upon the privilege of attending any event at the municipal soccer stadium. The amount shall be as follows:

a. Effective for events scheduled to occur during the first five years of the operation of the municipal soccer stadium, the amount of one dollar seventy-five cents per ticket;

b. Effective for events scheduled to occur during years six and seven of the operation of the municipal soccer stadium, the amount of two dollars twenty-five cents per ticket;

c. Effective for events scheduled to occur during years eight and nine of the operation of the municipal soccer stadium, the amount of two dollars fifty cents per ticket;

d. Effective for events scheduled to occur during years ten through fourteen of the operation of the municipal soccer stadium, the amount of two dollars seventy-five cents per ticket;

e. Effective for events scheduled to occur from and after year fifteen of the operation of the municipal soccer stadium, the amount of three dollars per ticket;

2. One dollar seventy-five cents of the ticket tax for the municipal soccer stadium will be dedicated to the payment of debt service on the bonds for the construction of the municipal soccer stadium. From and after the fifth year of the operation of the municipal soccer stadium, the amount of the ticket tax above one dollar seventy-five cents per ticket shall be deposited into a reserve account maintained by the metropolitan finance department to be used for long-term capital expenditures at the municipal soccer stadium.

C. The tax shall not be at a rate or in an amount that would create a reimbursement obligation to the primary tenant of the municipal stadium under a lease existing on January 1, 2009, so long as such lease is in effect.

D. The tax shall apply to the first, initial, or original sale of tickets.

E. The tax shall be in addition to all other taxes or fees levied or authorized to be levied on the sale of any event ticket, whether in the form of excise, license, or privilege taxes and shall be in addition to all other fees and taxes now levied or authorized to be levied. In accordance with T.C.A. § 7-3-202, the tax shall not be subject to state or local option taxes under Title 67, Chapter 6.

F. Exemptions. The tax shall not apply to:

1. An event at a municipal stadium for the benefit of a public college or university where the public college or university utilizes the municipal stadium for a majority of its home football games in a particular season;

2. Non-ticketed or complimentary admissions credentials;

3. Re-sales or redistributions of tickets.

4. Tickets for which no monetary consideration is received to the extent the number of such tickets does not exceed the lesser of:

a. Five percent of the total number of tickets offered for sale to the event, or

b. Three thousand two hundred fifty. (Ord. BL2018-1289 § 2, 2018; Ord. BL2011-40 § 1, 2011; Ord. BL2009-545 § 1, 2009)

5.14.030 Collection.

A. The tax shall be added to the ticket price charged for admission to the municipal stadium by each promoter of the event. The promoter shall collect the privilege tax and remit it to the metropolitan government.

B. The tax shall be remitted to the metropolitan finance department by all promoters not later than the twentieth day of each month next following collection from the purchaser. The promoter is required to collect the tax from the purchaser at the time the ticket is purchased; the obligation to the metropolitan government shall be that of the promoter.

C. The promoter may deduct up to two percent of the tax collected by the promoter to defray cost of accounting and remitting the tax to the metropolitan government. The compensation will be in the form of a deduction in submitting the amount due from the promoter. No compensation will be due the promoter if the amount due was delinquent at the time of payment.

D. The metropolitan finance department will prescribe the form of the reports and other information necessary for administration of this chapter. The promoter will keep all records necessary to determine the amount of the tax for a period of three years. The metropolitan government will have the right to inspect the records at all reasonable times.

E. Taxes collected by a promoter that are not remitted by the due dates are delinquent. A promoter shall be liable for interest on such delinquent taxes from the due date at the rate of eight percent per year, and in addition, a penalty of one percent for each month or fraction thereof such taxes are delinquent. The interest and penalty shall become a part of the tax required in this chapter to be remitted.

F. In administering and enforcing the provisions of this chapter the metropolitan finance department shall be authorized to adopt all necessary rules and regulations to assist in administering collection of the tax. The metropolitan finance department shall have, as additional powers, those powers and duties with respect to collection of taxes provided in Tennessee Code Annotated or otherwise provided by law. (Ord. BL2009-545 § 1, 2009)

5.14.040 Distribution proceeds.

The proceeds from the privilege tax authorized by this section and received by the metropolitan government shall be deposited in the metropolitan government's general fund and used by the metropolitan government exclusively:

1. to defray the cost of constructing, operating, renovating, expanding, or improving the municipal stadium; or

2. for the payment of debt service on bonds or other indebtedness issued by the metropolitan government or the sports authority for the construction, operation, renovation, expansion, or improvement of the municipal stadium. (Ord. BL2009-545 § 1, 2009)

5.14.050 Intent of provisions.

It is the intention of the metropolitan council that this chapter shall be construed liberally to carry out the intent of such articles, which is to levy throughout the general services district a privilege tax which by general law may be levied by counties. (Ord. BL2009-545 § 1, 2009)

Chapter 5.16

PRIVILEGE TAXES

Sections:

Article I. General Regulations

5.16.010 Tax imposed.
5.16.020 Collection.
5.16.030 Purpose of tax—Term—Exceptions.
5.16.040 Intent of provisions.

Article II. Specific Occupations and Activities

5.16.050 Alcoholic beverage retail sales—Consumption on premises.
5.16.055 Museum privilege tax.
5.16.060 Litigation.
5.16.070 Marriage licenses.
5.16.075 Victims assistance assessment.

Article III. Business Tax

5.16.080 Tax imposed—Statutory rates adopted—Copies on file.
5.16.085 Phone number and physical mailing address of applicants required.
5.16.090 Collection.
5.16.100 Disposition of funds.
5.16.110 Intent of provisions.
5.16.120 Ad valorem tax not affected by article provisions.

Article IV. Privilege Tax for Contract Vehicles Leaving the Airport

5.16.130 Privilege tax for contract vehicles leaving the airport authorized.
5.16.140 Distribution of privilege tax for contract vehicles leaving the airport.
5.16.150 Termination of privilege tax for contract vehicles leaving the airport.
5.16.160 [Tax collection official.]

Article I. General Regulations

5.16.010 Tax imposed.

Privilege taxes are levied on the vocations, occupations and businesses located in the general services district in the amounts specified and enumerated in Articles I and II of this chapter. (Prior code § 24-1-1)

5.16.020 Collection.

All privileges and privilege tax rates established in Articles I and II of this chapter shall be collected by the county court clerk or the metropolitan collections officer in the same amounts and in the same manner as provided by general law or the Metropolitan Charter. (Prior code § 24-1-2)

5.16.030 Purpose of tax—Term—Exceptions.

The tax imposed by Articles I and II of this chapter on each occupation, vocation or business is for the privilege of pursuing it for one calendar year, except as otherwise provided in Articles I and II of this chapter. (Ord. 90-1339 § 1 (24-1), 1990; prior code § 24-1-3)

5.16.040 Intent of provisions.

It is the intention of the metropolitan council that Articles I and II of this chapter shall be construed liberally to carry out the intent of such articles, which is to levy throughout the general services district all privilege taxes which by general law may be levied by counties. (Prior code § 24-1-4)

Article II. Specific Occupations and Activities

5.16.050 Alcoholic beverage retail sales—Consumption on premises.

A. There is levied the following privilege taxes on every person who exercises within the general services district the privilege of engaging in the business of selling at retail alcoholic beverages for consumption on the premises:

1. Common carrier, for each dining car, plane, ship, boat or other vehicle . . .	$ 100.00
2. Private club	300.00
3. Hotel and motel	1,000.00
4. Restaurant, according to seating capacity, on licensed premises:	
75—125 seats	600.00
126—175 seats	750.00
176—225 seats	800.00
226—275 seats	900.00
276 seats and over	1,000.00

B. Such taxes shall be payable annually to and collected by the metropolitan department of finance Upon payment of the privilege tax as set out in subsection A of this section, the metropolitan department of finance shall issue a receipt for the payment of such tax, which shall be displayed by the holder thereof at all

times in a conspicuous place in the permit holder's establishment licensed under Tennessee Code Annotated, Section 57-4-101, et seq.

C. It is the intention of the metropolitan council that this section shall be construed liberally to carry out its intent, which is to levy such privilege taxes which, by Section 57-4-301, et seq., as amended, of the Tennessee Code Annotated, may be levied within the general services district, such privilege taxes to be levied in the same manner and to the same extent as provided by law. The words, phrases or terms as defined in Chapter 1 of Title 57 of the Tennessee Code Annotated, as amended, shall have the same definition ascribed to them when used in this section. (Ord. BL2012-156 § 5, 2012; Ord. 90-1339 § 1 (24-2), 1990; prior code § 24-1-7.1)

5.16.055 Museum privilege tax.

A. In accordance with Title 67, Chapter 4, Part 30 of the Tennessee Code Annotated, there is levied a privilege tax in the amount of five percent upon the sales price of tangible personal property and services sold at the National Museum of African American Music.

B. The privilege tax authorized by this section shall be collected and remitted in accordance with the provisions set forth in Tenn. Code Ann. §§ 67-4-3004 and 67-4-3007.

C. The proceeds from the privilege tax authorized by this section shall be deposited into a fund entitled the "qualified public use facility development fund" and remitted to the National Museum of African American Music to be used solely for the cost of the museum, as "cost" is defined in Tenn. Code Ann. § 7-88-103.

D. The National Museum of African American Music shall be responsible for furnishing such books, records, and other information reasonably requested by the metropolitan government to ensure the privilege tax proceeds are used for the payment of the cost of the museum pursuant to Tenn. Code Ann. § 67-4-3005. (Ord. BL2022-1506 § 1, 2022)

5.16.060 Litigation.

A. Privilege taxes on litigation, except general sessions civil and detainer warrants, shall include and shall be collected as authorized by resolution in an amount not to exceed the maximum amount allowed by law:

1. Each suit in court of record;

2. Each indictment or presentment or cases tried on a state warrant charging driving while intoxicated, or carrying a deadly weapon with the intent to be armed, tried in a court of general sessions;

3. Each appeal to the Supreme Court in criminal cases, when the defendant is unsuccessful;

4. Each appeal or writ of error or certiorari from the county court, circuit court, chancery court or court of appeals to the Supreme Court;

5. Each appeal, writ of error or certiorari from county court, circuit court or chancery court to the court of appeals;

6. Each appeal or certiorari from a justice of the peace or court of like jurisdiction to the circuit court;

7. Moving and nonmoving traffic violations.

B. But in cases appealed or carried by certiorari from a justice of the peace or court of like jurisdiction to the circuit court, no tax shall be levied or collected on such litigation if such appeal or certiorari is dismissed or the case is otherwise settled before the case is called for trial.

C. The taxes on litigation above provided for shall be taxed as part of the costs of the cause, and in no case shall be remitted. The amount of any such tax remitted by a judge or attorney general in a criminal case shall be deducted by the commissioner of finance and administration from the salary of such judge or attorney general. The officer whose duty it is to collect the taxes herein imposed shall report to the county court clerk every ninety days and pay the same over to the metropolitan treasurer. No taxes shall be paid on juvenile court proceedings or in suits brought by the state, county or metropolitan government for the collection of taxes. When a suit is commenced in a court of record and carried to another court of concurrent jurisdiction, and in case of appeal from the metropolitan court to the circuit court, there shall be collected but one litigation tax. In addition to the above taxes, there shall be collected in misdemeanor cases a state and county expense fee as provided in Section 40-25-107, Tennessee Code Annotated.

D. A two dollar tax on litigation shall be collected on all cases in matters before the general sessions courts and the juvenile court of the metropolitan government. Such tax shall be taxed as part of the costs of the cause, and in no case shall be remitted. The tax collected by the clerk of the court shall be deposited in the general fund of the general services district. All revenue generated under this litigation tax shall be used exclusively to support victim-offender mediation center(s) operating within the area of metropolitan government organized under the provisions of Title 16, Chapter 20 of the Tennessee Code Annotated (T.C.A. § 16-20-101 et seq.) that handle victim-offender mediation and other community mediation matters. Such revenue shall be appropriated by the metropolitan council as part of the operating budget ordinance or by resolution, and shall be distributed on a monthly basis pursuant to T.C.A. § 16-20-106.

E. A two dollar tax on litigation shall be collected for each civil case filed in general sessions court, including metropolitan traffic cases. The tax collected by the clerk of the court shall be deposited in the general fund of the general services district. All revenue generated under this litigation tax shall be used exclusively to aid in defraying the costs of general sessions judges' salaries, pursuant to the terms set forth in Tennessee Code Annotated Section 16-15-5006 and other applicable state law. (Ord. BL2015-1126 § 1, 2015; Ord. BL2012-160 § 1, 2012; Ord. BL2011-2 § 1, 2011; Ord. BL2004-179 § 1, 2004; Ord. 95-1485 § 1, 1995; Ord. 92-248 § 1, 1992; Ord. 89-960 §§ 1, 2, 1989; Ord. 89-819 §§ 1, 2, 1989; prior code § 24-1-63)

5.16.070 Marriage licenses.

The privilege tax on marriage licenses shall be five dollars. (Prior code § 24-1-65)

5.16.075 Victims assistance assessment.

A. In accordance with the provisions of Tennessee Code Annotated Section 40-24-109, a forty-five dollar victims assistance assessment shall be collected by the Davidson County Criminal Court Clerk from any person who:

1. Enters a plea of guilty;
2. Is found guilty by a judge or jury;
3. Enters a plea of nolo contendere;
4. Enters a plea, pursuant to any of the diversionary sentencing statutes, to any criminal offense described in subsection B. of this section;
5. Is found guilty, or enters a plea of guilty or nolo contendere, to the offense of attempting or conspiring to commit any offense described in subsection B. of this section; or
6. Is found to be criminally responsible as principal for the commission of any offense described in subsection B. of this section.

B. Except as provided in subsection C. of this section, the victims assistance assessment shall apply to any conduct made criminal by the laws of this state.

C. The victim assistance assessment shall not apply to:

1. Crimes for which the law imposes, as a maximum possible punishment, a fine of less than five hundred dollars and no imprisonment; and
2. Violations of the motor vehicle laws, except driving under the influence of an intoxicant as prohibited by Tennessee Code Annotated Section 55-10-401, or reckless driving as prohibited by Tennessee Code Annotated Section 55-10-205, where the reckless driving was proximately caused by the use of an intoxicant.

D. Whether a person convicted of a crime is exempted from payment of the assessment imposed by this section shall be determined by the offense for which such person was convicted and the maximum possible sentence authorized by law for the offense, rather than the sentence the person actually receives.

E. CASA, Inc. (Court Appointed Special Advocate) of Nashville, Tennessee, the Mary Parish Center, the YWCA Domestic Violence program, the Nashville Children's Alliance, and the Sexual Assault Center are hereby designated as the victims assistance programs to be funded by the victims assistance assessment established pursuant to this section.

F. The victims assistance assessment authorized by this section shall be in addition to all other taxes, costs, and fines. The first three dollars ($3.00) of each assessment shall be retained by the Davidson County Criminal Court Clerk to defray processing and handling costs. The remaining forty-two dollars ($42.00) shall be disbursed as follows:

1. Eight dollars and forty cents ($8.40) shall be transmitted to CASA, Inc., to defray the costs of providing the services to victims of crime designated by the program's mission statement and guidelines.
2. Eight dollars and forty cents ($8.40) shall be transmitted to the Mary Parish Center to defray the costs of providing the services to victims of crime designated by the program's mission statement and guidelines.
3. Eight dollars and forty cents ($8.40) shall be transmitted to the YWCA Domestic Violence program to defray the costs of providing the services to victims of crime designated by the program's mission statement and guidelines.
4. Eight dollars and forty cents ($8.40) shall be transmitted to the Nashville Children's Alliance to defray the costs of providing the services to victims of crime designated by the program's mission statement and guidelines.
5. Eight dollars and forty cents ($8.40) shall be transmitted to the Sexual Assault Center to defray the costs of providing the services to victims of crime designated by the program's mission statement and guidelines." (Ord. BL2009-539 § 1, 2009; Ord. BL2008-214 § 1, 2008)

Article III. Business Tax

5.16.080 Tax imposed—Statutory rates adopted—Copies on file.

A. Section 67-4-701, et seq., as amended, of the Tennessee Code Annotated is adopted by reference, and the rates set out therein are incorporated in this code.

Privilege taxes are levied in the same amount and at the same rate as contained in Section 67-4-701, et seq., as amended, of the Tennessee Code Annotated.

B. Three copies of Section 67-4-701, et seq., as amended, of the Tennessee Code Annotated, are on file in the office of the metropolitan clerk. (Ord. 90-1339 § 1 (24-7), 1990; prior code § 24-1-134)

5.16.085 Phone number and physical mailing address of applicants required.

In addition to any other information required by state law or the county clerk, an applicant shall provide at the time of filing an application for a business tax license a valid telephone number, email address, and physical mailing address where the applicant can be reached. For purposes of this ordinance, "physical mailing address" does not include a post office box. (Ord. BL2020-379 § 1, 2020)

5.16.090 Collection.

A. It is the intention of the metropolitan county council that all privileges and privilege tax rates established in Section 67-4-701, et seq., as amended, of the Tennessee Code Annotated, and which, by general law, counties are entitled to collect, shall be collected by the county clerk or the collections officer in the same amounts and in the same manner as provided by general law or the Metropolitan Charter.

B. The county court clerk or the collections officer of the metropolitan government shall provide each applicant for a business tax license a statement indicating that the operation of a business must comply with all zoning requirements. Upon issuance of the business license, the applicant shall be directed to the department of codes administration to determine whether or not the proposed business is permitted in the existing zoning classification. Further, the county court clerk or the collections officer shall provide a list of business licenses issued to the department of codes administration. (Ord. 90-1339 § 1 (24-8), 1990; prior code § 24-1-135)

5.16.100 Disposition of funds.

The proceeds derived from the privileges taxed herein shall be deposited to the general fund of the general services district. (Prior code § 24-1-136)

5.16.110 Intent of provisions.

It is the intention of the metropolitan county council that this article shall be construed liberally to carry out the intent of this article, which is to levy all privilege taxes which, by general law, may be levied by counties. (Prior code § 24-1-137)

5.16.120 Ad valorem tax not affected by article provisions.

It is not the intention of the metropolitan county council, by adopting Section 67-4-701, et seq., as amended, of the Tennessee Code Annotated, as set out in Section 5.16.080, to affect in any way the imposition and collection of any lawful ad valorem tax imposed on personal or real property. (Ord. 90-1339 § 1 (24-9), 1990; prior code § 24-1-138)

Article IV. Privilege Tax for Contract Vehicles Leaving the Airport

5.16.130 Privilege tax for contract vehicles leaving the airport authorized.

A. There is hereby authorized a privilege tax on the privilege of contracted vehicles exiting public airports located within the boundaries of the metropolitan government.

(1) Such tax shall be imposed only upon contracted vehicles which charge customers a separate fee for transportation from the airport unless otherwise excluded in this part.

(2) The tax shall be in the amount of two dollars each time a contracted vehicle meeting the requirements of subdivision (2) exits the airport while transporting customers from the airport located within the territory of the metropolitan government, but shall exclude non-commercial vehicles and equipment operated by the metropolitan transit authority.

(3) The tax so imposed is a privilege tax upon the contracted vehicle exiting the airport and is to be collected and distributed as provided in this article.

(4) The privilege tax is due each time a contracted vehicle to which this section applies leaves the airport. The operator of the contracted vehicle shall be responsible for keeping accurate records to determine the amount of tax due and payable. Such information shall be transmitted daily by the operator of the contracted vehicle to a designated individual within the business organization which hired the operator of the contracted vehicle. The privilege tax shall be remitted to the metropolitan tax collection official by a designated individual within such business organization not later than the 20th of each month.

B. (1) Taxes due and payable that are not remitted to the tax collection official on or before the due dates are delinquent.

(2) The person owing such taxes shall be liable for interest on such delinquent taxes from the due date at the rate of eight percent per annum, and in addition for a penalty of one percent for each month or fraction of a

month that such taxes are delinquent. Such interest and penalty shall become a part of the tax required in this chapter to be remitted.

(3) As provided in T.C.A. § 7-4-205, willful refusal of a person to collect or remit the tax or willful refusal of an operator of a contracted vehicle to keep accurate records of the tax due and payable is a class C misdemeanor.

(4) Any fine levied in this chapter shall be applicable to each individual transaction involving a contractor of a contracted vehicle for willful refusal to keep accurate records or the willful refusal of a person to collect or remit the tax due and owing. (Ord. BL2007-1557 § 4, 2007)

5.16.140 Distribution of privilege tax for contract vehicles leaving the airport.

All revenues received by the metropolitan government from this privilege tax shall be deposited into the metropolitan government fund entitled "The Convention Center Fund" and shall be used for the purpose of paying costs incurred in the modification or construction of a publicly owned convention center in excess of four hundred million dollars and costs located within the territory of the metropolitan government. If the revenues from such surcharge or tax in any fiscal year exceed the total of such debt service requirements from that year, said surplus revenue thus accruing shall be retained by the metropolitan government as a reserve fund for future debt service requirements. (Ord. BL2007-1557 § 4, 2007)

5.16.150 Termination of privilege tax for contract vehicles leaving the airport.

The privilege tax for contract vehicles leaving the airport authorized by the article shall terminate once the total bonded indebtedness incurred for the modification or construction of a convention center facility by the metropolitan government has been paid in full as to bond principal and interest, including expenses of bond sale or sales, and the metropolitan council repeals the provisions of this article. Provided however, that any funds remaining in the reserve fund after all obligations imposed under this provision of this part have been fulfilled, shall be used by the governmental board or agency responsible for the operation of the convention center for use by it in the operation, promotion and advertisement of the convention center facilities. (Ord. BL2007-1557 § 4, 2007)

5.16.160 [Tax collection official.]

For the purpose of article IV of this chapter the phrase "tax collection official" shall mean the department of finance. (Ord. BL2012-156 § 4, 2012)

Chapter 5.20

PROPERTY TAXES

Sections:

5.20.010 **Tax bills sent to property owners.**
5.20.020 **Consolidated tax bills.**
5.20.030 **Delivery dates of tax rolls and bills to metropolitan trustee.**
5.20.040 **Mailing dates of bills to property owners.**
5.20.050 **Reserved.**
5.20.060 **Reserved.**
5.20.070 **Failure to send or receive bills—Effect on tax obligation.**
5.20.080 **Low-income elderly assistance program.**
5.20.090 **Proration of real property tax assessments affected by disaster certified by FEMA.**
5.20.100 **Historic property improvement and restoration tax abatement program.**
5.20.110 **Historic properties owned by charitable institutions tax abatement program.**

5.20.010 Tax bills sent to property owners.

Pursuant to the authority of Section 7-3-203, Tennessee Code Annotated, as a convenience to taxpayers, the metropolitan trustee is directed to prepare and send to the owner or owners of taxable property or their representative a bill for the amount of taxes due to the metropolitan government on such property. The metropolitan trustee may rely on the mailing address maintained in the records of the metropolitan tax assessor. (Ord. BL2012-216 § 1, 2012; prior code § 15-1-32)

5.20.020 Consolidated tax bills.

Where taxable property is located within the urban services district, the metropolitan trustee is authorized to consolidate into one tax bill the tax for the urban service district and the tax for the general services district, computed on the combined tax rate of both of such districts; provided, that the tax rate for each of such districts shall be shown plainly on the face of such consolidated tax bill. (Prior code § 15-1-33)

5.20.030 Delivery dates of tax rolls and bills to metropolitan trustee.

The metropolitan tax assessor shall deliver the assessment roll to the trustee by September 15th of each year. (Ord. BL2012-216 § 2, 2012; prior code § 15-1-34)

5.20.040 Mailing dates of bills to property owners.

The metropolitan trustee shall send the tax bills provided for in this chapter to the property owners or to their representatives by regular United States mail, or if requested in writing by any property owner or their representative, by electronic statement, on or before the first Monday in October of each year. The metropolitan trustee shall establish policies and procedures for providing a manner in which a property owner or their representative may opt to receive electronic statements. (Ord. BL2012-216 § 3, 2012; prior code § 15-1-35)

5.20.050 Reserved.

Editor's note—Ord. BL2012-216 § 4, passed Sept. 4, 2012, repealed § 5.20.050 which pertained to installment payments—Combined tax bills and derived from prior code § 15-1-37.

5.20.060 Reserved.

Editor's note—Ord. BL2012-216 § 5, passed Sept. 4, 2012, repealed § 5.20.060 which pertained to installment payments—Property located outside urban services district and derived from prior code § 15-1-38.

5.20.070 Failure to send or receive bills—Effect on tax obligation.

The failure of the metropolitan trustee to send out tax bills or of any taxpayer or his representative to receive the same shall not release the taxpayer from the obligation to pay his taxes when due. (Prior code § 15-1-36)

5.20.080 Low-income elderly assistance program.

A. There is created a program to provide assistance to the low-income elderly residents of the metropolitan government.

B. All persons who qualified for the Property Tax Relief Program under the provisions of Tennessee Code Annotated Section 67-5-702 for the tax year 2010 and whose income does not exceed twenty-six thousand eight hundred thirty dollars, shall be eligible for participation in this program.

C. The trustee of the metropolitan government is directed to pay or cause to be paid from the Property Tax Relief Program Account to all eligible taxpayers under the provisions of subsection B. an amount to be determined under the rules and procedures authorized under subsection D. hereof, or in lieu of a direct payment to the eligible person, the trustee shall make such payment as directed by the eligible person.

D. The trustee is authorized to establish such rules and procedures as he may deem necessary for the purpose of implementing such program.

E. The provisions of this chapter shall expire and be null and void on June 30, 2011. (Ord. 91-9 §§ 1—5, 1991; Ord. BL2010-760, §§ 1—5)

5.20.090 Proration of real property tax assessments affected by disaster certified by FEMA.

The metropolitan county council hereby approves and adopts the provisions of Tennessee Code Annotated Section 67-5-603(d) ("the Statute") and said statute shall be applicable to the Metropolitan Government of Nashville and Davidson County. (Ord. BL2010-695 § 1, 2010)

Editor's note—Ordinance No. BL2010-695 § 1, approved July 23, 2010, did not specifically amend the Code. Therefore, such ordinance has been added as § 5.20.090 at the editor's discretion.

5.20.100 Historic property improvement and restoration tax abatement program.

A. The provisions of Tennessee Code Annotated § 67-5-218 shall be applicable to the Metropolitan Government of Nashville and Davidson County as provided in this section.

B. The historic zoning commission as established by Article IX of Chapter 17.40 of the Metropolitan Code shall serve as the historic property review board for Nashville and Davidson County.

C. The historic property review board shall develop criteria for certification of historic properties pursuant to T.C.A. § 67-5-218(a)(2)(B).

D. The cumulative maximum value of improvements made to, or restorations of, all structures for which historic property tax abatements may apply pursuant to this Section in any one (1) fiscal year shall be no greater than twenty million dollars.

E. Subject to the provisions of this section, the historic property review board shall review and approve property tax abatements for improvements or restorations made to historic properties that meet the criteria for certification as established by the historic property review board or that meet other conditions for approval as established in T.C.A. § 67-5-218(a)(B)(3).

F. The provisions of this Section, including authorization for the establishment of a historic property review board and the abatement of property taxes, shall expire and be of no further force and effect as of July 1, 2032, unless extended by resolution of the metropolitan council.

G. The cumulative maximum value of restorations of all structures damaged by the December 25, 2020, bombing on 2nd Avenue for which historic property tax abatements may apply pursuant to this Section shall be no greater than forty million dollars.

H. The historic zoning commission shall submit an annual report to the metropolitan council on or before November 30. Such annual report shall contain the following information for each qualified project:

1. Location of property, including the map and parcel number.

2. The pre-renovation investment value of the property.

3. The post-renovation value of the property.

4. The amount of the tax abatement.

5. The amount of the tax liability. (Amdt. 1 to Ord. BL2022-1382 § 2, 2022; Ord. BL2022-1382 §§ 1—3, 2022; Ord. BL2021-864 § 1, 2021; Ord. BL2019-3 § 1, 2021)

5.20.110 Historic properties owned by charitable institutions tax abatement program.

A. The provisions of Tennessee Code Annotated § 67-5-222 shall be applicable to the Metropolitan Government of Nashville and Davidson County.

B. Property eligibility shall be determined pursuant to T.C.A. § 67-5-222(a).

C. The historic property review board shall establish guidelines governing comprehensive preservation and maintenance plans required for each qualified property and review and approve such plans to ensure that property tax savings shall be applied to the preservation and maintenance of the property as established in T.C.A. § 67-5-222(b).

D. The tax exemption shall be valid for a ten-year period; however, the owner of the property may apply for additional exemption periods; provided, that an updated preservation and maintenance plan is filed with the historic property review board in accordance with its guidelines as established in T.C.A. § 67-5-222(c). (Ord. BL2019-49 § 1, 2021)

Chapter 5.22

COMMERCIAL PROPERTY ASSESSED CLEAN ENERGY AND RESILIENCE (C-PACER) PROGRAM

Sections:

5.22.010	**Establishment; legislative intent.**
5.22.020	**Definitions.**
5.22.030	**Territory.**
5.22.040	**Program administration.**
5.22.050	**C-PACER financing.**
5.22.060	**C-PACER lien.**
5.22.070	**Application and review.**
5.22.080	**Program guidelines.**
5.22.090	**Collection and enforcement; delinquencies.**
5.22.100	**Fees.**
5.22.110	**Severability.**
5.22.120	**No liability.**

5.22.010 Establishment; legislative intent.

There is hereby established within the boundaries of the Metropolitan Government of Nashville and Davidson County a commercial property assessed clean energy and resilience ("C-PACER") program as provided for by Tenn. Code Ann. § 68-205-101, et seq. The metropolitan government finds that it is convenient and advantageous to establish the program allowing an eligible property owner to finance a loan for a qualified project that is repaid through voluntary, annual assessment installment payments secured by a metropolitan government special assessment and lien levied on the eligible property. The metropolitan government further finds that the program is in the public interest, provides a safety, health, and environmental public benefit, and provides for economic development of the community. The program shall allow financing for the full range of qualified improvements on all eligible properties, as authorized by the C-PACER Act, and shall abide by and operate according to the C-PACER Act. (Ord. BL2022-1633 § 1, 2023)

5.22.020 Definitions.

The definitions as used in this chapter:

"Application checklist" means the list of items required by the C-PACER Act, this chapter, the program guidelines, and the corresponding documentation that the metropolitan government accepts or may request in order to show the requirements of the C-PACER Act and this chapter have been met.

"Assessment" means the special assessment levied on the eligible property by the metropolitan government to require the payment of annual assessment installments in an amount sufficient to repay C-PACER financing, together with interest, penalties, and fees. The maximum term of an assessment may not exceed the useful life of the qualified improvement or weighted average life if more than one qualified improvement is included in the qualified project.

"Assessment agreement" means an agreement between the metropolitan government, program administrator, property owner, and capital provider whereby the parties agree to the metropolitan government placing an assessment and C-PACER lien on the eligible property to secure the obligation to repay the C-PACER financing and that the property owner will make payments to the Program administrator in the same manner as ad valorem property taxes.

"Assessment installment" means annual payments as provided for in the assessment agreement to be made by or on behalf of the property owner to repay the C-PACER financing.

"Capital provider" means any private entity, its designee, successor, and assignees that makes or funds C-PACER financing pursuant to the program.

"C-PACER Act" shall mean the Commercial Property Assessed Clean Energy and Resilience Act as codified at Tennessee Code Annotated 68-205-101 et seq.

"C-PACER financing" means an investment from a capital provider to a property owner to finance or refinance a qualified project. The proposed C-PACER financing for a qualified improvement may authorize the property owner to:

A. Purchase directly the related equipment and materials for the installation or modification of a qualified improvement; and

B. Contract directly, including through lease or other service contract, for the installation or modification of a qualified improvement.

"C-PACER lien" means the lien for the assessment as recorded with the Davidson County Register of Deeds on the eligible property to secure repayment of the C-PACER financing, which runs with the land and remains on the eligible property until the C-PACER financing is paid in full.

"Eligible property" means privately-owned commercial, industrial, or agricultural real property or multifamily residential real property with five or more dwelling units. Eligible Property may be owned by any type of business, corporation, individual, or nonprofit organization permitted by state law. Eligible property may also include property owned by a state or local governmental entity, but leased to a privately-owned

entity, which may include an industrial development corporation; housing authority; or health, educational and housing facilities board.

"Financing agreement" means the contract under which a property owner agrees to repay a capital provider for the C-PACER financing including, but not limited to, details of any finance charges, fees, debt servicing, accrual of interest and penalties, and any terms relating to treatment of prepayment and partial payment of the C-PACER financing.

"Notice of assessment interest and C-PACER lien" means the instrument recorded with the Davidson County Register of Deeds giving notice of the assessment and C-PACER lien on the eligible property.

"Program" means the commercial property assessed clean energy and resilience program established pursuant to this chapter.

"Program administrator" means the office of the metropolitan trustee, which has been designated by the metropolitan government to administer the program.

"Program guidebook" means, collectively, the documents adopted and utilized by the program administrator for the program, including, without limitation, the program guidelines, assessment agreement, the notice of assessment interest and C-PACER lien, and other supporting documents and forms.

"Program guidelines" means the criteria developed by the program administrator, in accordance with the requirements of this chapter and the C-PACER Act, that details the necessary requirements for approval.

"Property owner" means an owner (or in the case of a ground lease, owner of an estate for years) of an eligible property who desires to install qualified improvements and provides willing consent to the assessment against the eligible property.

"Qualified improvement" means a permanent improvement affixed to real property and intended to: (a) decrease energy consumption or demand through the use of efficiency technologies, products, or activities that reduce or support the reduction of energy consumption, allow for the reduction in demand, or support the production of clean, renewable energy, including but not limited to a product, device, or interacting group of products or devices on the customer's side of the meter that generates electricity, provides thermal energy, or regulates temperature; (b) decrease water consumption or demand and address safe drinking water through the use of efficiency technologies, products, or activities that reduce or support the reduction of water consumption, allow for the reduction in demand, or reduce or eliminate lead from water which may be used for drinking or cooking; or (c) increase resilience, including but not limited to seismic retrofits, fire suppression, flood mitigation, stormwater management, wildfire and wind resistance, energy storage, and microgrids.

"Qualified project" means a project approved by the program administrator, involving the installation or modification of a qualified improvement, including new construction or the adaptive reuse of eligible property with a qualified improvement, including qualified improvements installed no more than two years prior to the date of application. Together, qualified improvements, inclusive of all related and eligible costs pursuant to the C-PACER Act that are to be financed as described in an application and approved by the program administrator, are a qualified project. (Ord. BL2022-1633 § 1, 2023)

5.22.030 Territory.

The program shall be available to all eligible property located within the territory of the metropolitan government. (Ord. BL2022-1633 § 1, 2023)

5.22.040 Program administration.

The metropolitan government designates the office of the metropolitan trustee as the program administrator. The program administrator shall review and approve applications to the program submitted in accordance with the program guidelines; collect any fees for the program; develop, execute, acknowledge and deliver, on behalf of the metropolitan government, all documents necessary to carry out the purposes of the program and this chapter; record with the Davidson County Register of Deeds requisite documents for the program; and collect and remit to the capital provider payments made to the metropolitan government for the assessment. (Ord. BL2022-1633 § 1, 2023)

5.22.050 C-PACER financing.

A. C-PACER financing, in accordance with the C-PACER Act, is to be provided by capital providers through a financing agreement entered into with the property owner of an eligible property to fund a qualified project.

B. The C-PACER financing may cover costs including:

1. The cost of materials and labor necessary for installation or modification of a qualified improvement;
2. Permit fees;
3. Inspection fees;
4. Financing or origination fees;
5. Program application and administrative fees;
6. Project development, architectural and engineering fees;

7. Third-party review fees, including verification review fees;

8. Capitalized interest;

9. Interest reserves; or

10. Any other fees or costs that may be incurred by the property owner incident to the installation, modification, or improvement of a qualified improvement on a specific or pro rata basis.

C. Prior to entering into a financing agreement, the capital provider must receive written consent from every holder of a deed of trust or mortgage interest in the eligible property that will be subject to the assessment and C-PACER lien who agree that the property owner may participate in the program and that the C-PACER lien will take precedence over all other liens on the eligible property except for a lien for ad valorem property taxes. (Ord. BL2022-1633 § 1, 2023)

5.22.060 C-PACER lien.

A. Following approval of an application to the program by the program administrator, the property owner shall execute an assessment agreement consenting to the assessment and C-PACER lien being placed against the eligible property.

B. The C-PACER lien amount, plus any interest, penalties, fees and charges accrued or accruing on the C-PACER lien:

1. Takes precedence over all other liens or encumbrances except a lien for taxes imposed by the state, a local government, or a junior taxing district on the eligible property, which liens for taxes shall have priority over such C-PACER lien; and

2. Is a first and prior lien, equal to the lien for taxes imposed by the state, a local government, or a junior taxing district against the eligible property on which the C-PACER lien is imposed, from the date on which the notice of the C-PACER lien is recorded until the C-PACER lien, interest, penalties, fees and charges accrued or accruing are paid in full.

C. The C-PACER lien runs with the land, and that portion of the C-PACER lien that has not yet become due is not accelerated or eliminated by enforcement of the C-PACER lien by tax sale or any lien for taxes imposed by the state, a local government, or junior taxing district against the real property on which the C-PACER lien is imposed.

D. After the C-PACER lien is recorded as provided for in this chapter, the assessment, C-PACER financing and the C-PACER lien may not be contested on the basis that the improvement is not a qualified improvement or that the project is not a qualified project. (Ord. BL2022-1633 § 1, 2023)

5.22.070 Application and review.

A. A property owner and capital provider shall apply to the program and submit all required supporting documents included in the program guidebook for review by the program administrator.

B. The application to the program shall require:

1. An attestation by the property owner that the proposed project consists of one or more qualified improvements.

2. For an existing building seeking improvements (a) where energy or water usage improvements are proposed, a certification by a licensed engineering firm, engineer, or other qualified professional listed in the program guidelines stating that the proposed qualified improvements will either result in more efficient use or conservation of energy or water, the reduction of greenhouse gas emissions, or the addition of renewable sources of energy or water; (b) where safe drinking water measures are proposed, a certification by a licensed professional engineer stating that the qualified improvements will result in the reduction of lead in potable water; or (c) where resilience improvements are proposed, a certification by a licensed professional engineer stating that the qualified improvements will result in improved resilience.

3. For new construction, a certification by a licensed professional engineer stating that the proposed qualified improvements, individually, or acting as a whole, will enable the project to exceed the energy efficiency, water efficiency, renewable energy, renewable water, or resilience requirements of the current building codes of the metropolitan government.

C. The program administrator shall review an application according to the application checklist to determine whether it: (i) is complete, (ii) proposes a qualified improvement, (iii) contains no errors on its face, and (iv) that all information is provided in the substance and form required by the application checklist. If an application and supporting documents comply with the application checklist, the program administrator may sign the application checklist indicating that an application is deemed approved and the project is a qualified project. If an application to the program is incomplete and/or does not conform to the requirements of the application checklist, the program administrator shall inform the applicant as soon as practicable that an application is denied, the reasons for the denial, and any corrections that could make the application. If feasible, the applicant shall have an opportunity to correct its application.

D. The application review process is confined to confirming that an application is complete, that all attachments conform to the program guidelines, and that the capital provider and property owner are found to sufficiently meet the program's criteria. The program administrator's approval shall not constitute endorsement of any representations that may be made with regard to the operation and any savings associated with the qualified improvements.

E. An application may be conditionally approved if the application is complete but the attachment regarding lender consent of the C-PACER lien is not yet available per requirements outlined in the program guidelines. If after thirty days, not all necessary documents are submitted by the applicant, or a lender does not submit the consent form, the application is deemed as incomplete and the conditional approval is moved to not approved.

F. Upon approval of an application, a property owner or capital provider shall provide the completed and executed assessment agreement and notice of assessment interest and C-PACER lien to the office of the metropolitan trustee for execution at least five days prior to close of the C-PACER transaction, along with a requested date for recordation of such forms.

G. The metropolitan government shall record the assessment agreement and the notice of assessment interest and C-PACER lien with the Davidson County Register of Deeds. At the request of the property owner and the capital provider, the recording of the executed documents may be delegated to the capital provider. (Ord. BL2022-1633 § 1, 2023)

5.22.080 Program guidelines.

A. The C-PACER program shall be administered in accordance with the requirements contained in this chapter, the C-PACER Act, and the program guidelines as established by the program administrator.

B. The program guidelines, program guidebook, and other forms may be amended by the program administrator from time to time to carry out the intent and purposes of this chapter, provided that such amendments comply with the C-PACER Act, this chapter, and applicable law. Notwithstanding, material amendments to the program, program guidelines, or program guidebook concerning the eligibility of an eligible property, property owner, qualified improvement, qualified project, or concerns the roles and responsibilities of the metropolitan government in administering the program shall be approved by the metropolitan council, which shall be by resolution. (Ord. BL2022-1633 § 1, 2023)

5.22.090 Collection and enforcement; delinquencies.

A. Assessment installments shall be paid to the program administrator and be due and payable at the same time and in the same manner as ad valorem property taxes. The program administrator shall cause the assessment installment to be reflected on the annual property tax bill for the eligible property, provided that failure to do so shall not be a defense for not making a payment when due.

B. Failure to pay any assessment installment by the due date shall result in penalties and interest accruing on unpaid amounts as provided for in the financing agreement. Statutory interest and penalties, as allowed for delinquent ad valorem property taxes, shall also accrue on delinquent assessment installments, which shall be retained by the metropolitan government.

C. Collection of assessment installments and enforcement of C-PACER liens due to delinquent assessment installments, including enforcement by tax sale, shall be enforced by the delinquent tax attorney in the same manner and at the same time as delinquent real property taxes. (Ord. BL2022-1633 § 1, 2023)

5.22.100 Fees.

The program administrator is authorized to collect an application fee at the time of application to the program that is up to one percent of the applicable C-PACER financing, but not to exceed fifty thousand dollars. The fee shall be calculated to offset the actual and reasonable causes to the metropolitan government for administration of the program. If an application is declined, the fee paid shall be returned to the applicant, less the amount necessary to offset the actual and reasonable costs of reviewing the application. (Ord. BL2022-1633 § 1, 2023)

5.22.110 Severability.

If any provision or clause of this chapter or the application thereof to any person or circumstance is held to be unenforceable by a court of competent jurisdiction, such clause or provision and the remainder of this chapter shall remain effective and enforceable to the full extent allowed by law, and all clauses and provisions of this chapter are hereby declared to be severable. In the event and to the extent of a conflict exists between this chapter and the C-PACER Act, the C-PACER Act shall govern. (Ord. BL2022-1633 § 1, 2023)

5.22.120 No liability.

Except for a right of action to enforce the terms of this chapter, this chapter does not confer any right of action nor property interest upon any party to a C-PACER

transaction against the metropolitan government, and, so long as metropolitan government complies in good faith with the terms of the C-PACER Act and this chapter, the metropolitan government shall incur no liability for enacting the program, nor shall the metropolitan government, its governing body, officers, employees, or agents be personally liable as a result of exercising any rights or responsibilities granted pursuant to this chapter. (Ord. BL2022-1633 § 1, 2023)

Chapter 5.24

PROPERTY IDENTIFICATION MAPS FOR TAX ASSESSMENT

Sections:

5.24.010 **Official maps adopted—Copies on file.**

5.24.010 Official maps adopted—Copies on file.

That the property identification maps on file with the metropolitan planning commission and the metropolitan clerk, which are fully incorporated into this ordinance by reference as though copied herein, are hereby adopted as the official property identification maps for the Metropolitan Government of Nashville and Davidson County, identifying the property as of January 1, 2022, and shall be the official property identification maps for the metropolitan government for such purposes set forth in Tennessee Code Annotated Section 67-5-806, to the extent applicable to metropolitan forms of government, Tennessee Code Annotated Section 66-24-113, and Metropolitan Code Section 5.24.010. (Ord. BL2022-1348 § 1, 2022; Ord. BL2019-1561 § 1, 2019; Ord. BL2017-838 § 1, 2017; Ord. BL2014-871 § 1, 2014; Ord. BL2011-35 § 1, 2011; Ord. BL2010-729 § 1, 2010; Ord. BL2003-31 § 1, 2003; Ord. 95-19 § 1, 1995; Ord. 90-1196 § 1, 1990)

Chapter 5.28

RETAILERS' SALES TAX

Sections:

5.28.010	**Tax imposed—Amount—Application.**
5.28.020	**Exceptions.**
5.28.030	**Disposition of funds.**
5.28.040	**Collection.**
5.28.050	**Suits for recovery of illegally assessed or collected taxes.**
5.28.060	**Delinquent payments—Penalties and interest.**

5.28.010 Tax imposed—Amount—Application.

A. Tax Imposed. There is levied a tax in the same manner and on the same privileges, subject to the Retailers' Sales Tax Act* under Chapter 6, Title 67, Tennessee Code Annotated (T.C.A. § 67-6-101 et seq.), which are exercised in the general services district of the metropolitan government area at a rate of one-half the rates levied in the Retailers' Sales Tax Act, codified in Chapter 6, Title 67, Tennessee Code Annotated.

B. Application.

1. Beginning August 1, 1983, or September 1, 1983 (the effective date of this section), whichever is later, the tax levied by the local option sales and use tax shall apply to the first six hundred sixty-seven dollars on the sale or use of any single article of personal property.

2. Beginning July 1, 1984, the tax levied by the local option sales and use tax shall apply to the first eight hundred eighty-nine dollars on the sale or use of any single article of personal property.

3. Beginning July 1, 1985, the tax levied by the local option sales and use tax shall apply to the first one thousand one hundred dollars on the sale or use of any single article of personal property. (Ord. 90-1339 § 1 (15-3), 1990; prior code § 15-1-39)

*** Editor's note—**The retailers' sales tax set out in this chapter was approved by the voters at a referendum on August 1, 1968.

5.28.020 Exceptions.

The exemptions set out in Section 67-6-704, Tennessee Code Annotated are excepted from the tax levied by this chapter. (Ord. 90-1339 § 1 (15-4), 1990; prior code § 15-1-40)

5.28.030 Disposition of funds.

Fifty percent of the tax collected pursuant to this chapter shall go into the school fund, as provided by Section 67-6-712, Tennessee Code Annotated. (Ord. 90-1339 § 1 (15-5), 1990; prior code § 15-1-41)

5.28.040 Collection.

It having been determined by the department of revenue of the state that it is feasible for the tax levied by this chapter to be collected by that department, the department of revenue of the state shall collect the additional tax imposed by this chapter concurrently with the collection of the state tax in the same manner as the state tax is collected in accordance with rules and regulations promulgated by such department. The finance director of the metropolitan government is authorized to contract with the department of revenue of the state for the collection of the additional tax by such department, and to provide in such contract that the department deduct from the tax collected a reasonable amount or percentage to cover the expense of the administration and collection of such tax. (Prior code § 15-1-43)

5.28.050 Suits for recovery of illegally assessed or collected taxes.

In the event the tax levied by this chapter is collected by the state department of revenue, suits for the recovery of any tax illegally assessed or collected shall be brought against the finance director of the metropolitan government. (Prior code § 15-1-44)

5.28.060 Delinquent payments—Penalties and interest.

Penalties and interest for delinquencies in payment of the tax levied by this chapter shall be the same as provided in Sections 67-1-801, et seq., and 67-6-501, et seq., Tennessee Code Annotated. (Ord. 90-1339 § 1 (15-6), 1990; prior code § 15-1-42)

Chapter 5.32

VEHICLE TAXES

Sections:

Article I. Commercial Vehicles—Privilege Tax

5.32.010 License and payment of commercial vehicle regulatory license required—Exceptions.
5.32.020 License—Issuance conditions.
5.32.030 Amount of tax—Schedule.
5.32.040 License tags—Display—Replacement if stolen.
5.32.050 License tags—Replacement if lost.
5.32.060 License tags—Unauthorized use—Transfer.
5.32.070 Counterfeit license tags.
5.32.080 Expiration of license—Proration of commercial vehicle regulatory license.

Article II. Passenger Vehicle and Motorcycle Privilege Tax

5.32.090 Definitions.
5.32.100 Exceptions to article provisions—Free metro sticker provided when.
5.32.110 License required—Fees—Exceptions.
5.32.120 Registration required—Duties of county court clerk—Extension.
5.32.130 Renewal fees—Proration—Exemption from Section 5.32.120.
5.32.140 Reserved.
5.32.150 Failure to display current license—Violation and penalty.
5.32.160 Delinquent license fees.
5.32.170 Disposition of funds.
5.32.180 Violation and penalty.

Article III. Rental Vehicle Surcharge

5.32.190 Surcharge authorized.

Article I. Wheeled Vehicles—Privilege Tax

5.32.010 License and payment of commercial vehicle regulatory license required—Exceptions.

A. No wagon, dray, cart, hack, cab, omnibus, automobile, truck, motorcycle or other wheeled vehicle shall be kept, run, employed or operated in the general services district or over and upon any of the streets, avenues, highways, alleys and public places of the general services district, for business or commercial purposes or for hire, directly or indirectly, unless the owner, proprietor, or operator thereof shall have first obtained a license therefor and paid the commercial vehicle regulatory license provided in Section 5.32.030.

B. The owner, proprietor or operator of any wagon, cart, dray, automobile, automobile truck, motorcycle or other wheeled vehicle, employed in hauling, transporting or delivering lumber, brick, cement, lime, wood, coal, furniture, bread, water, milk, oil, gasoline, groceries, meat or any kind of merchandise, goods, commodity, material or supplies in the general services district or over and upon any of the streets, avenues, highways, alleys and public places of the general services district to customers or to others, whether the handling, transporting or delivery is free or for hire, or for the business or commercial purposes of each owner, proprietor or operator, shall take out a license therefor and pay the commercial vehicle regulatory license at the rates provided in Section 5.32.030.

C. The owner, proprietor or operator of any wagon, cart, dray, automobile, automobile truck, motorcycle, omnibus or other wheeled vehicle, employed in transporting passengers for hire, directly or indirectly, or employed in the business or commercial purposes of such owner, proprietor or operator in the general services district or over and upon any of the streets, avenues, highways, alleys and public places of the metropolitan government, shall take out a license therefor and pay the commercial vehicle regulatory license at the rates provided in Section 5.32.030.

D. But the owner, proprietor or operator of any cart, dray, wagon, automobile, automobile truck or other wheeled vehicle, used or employed in bringing to market in the general services district from without the metropolitan government area any fish, game, fowl, animals, hides, wool, meat, lard, butter, milk, produce, vegetables, grain, hay, logs, cross-ties lumber, wood or other produce of the farm, shall not be required to take out a license for such vehicle or to pay the commercial vehicle regulatory license provided in Section 5.32.030.

E. Nor shall the owner, proprietor or operator of any automobile, or motorcycle, used or employed exclusively for the transportation of himself or his family from place to place within the metropolitan government area or to and from the metropolitan government area or for the convenience and health of himself or family and not used or employed for business or commercial purposes, be required to take out a license for such automobile or motorcycle or to pay the commercial vehicle regulatory license provided in Section 5.32.030.

F. Any revenues derived from the commercial vehicle regulatory license collected under this article shall be paid over daily to the metropolitan treasurer and shall be used to pay the costs of administration and enforcement of the provisions of this article, and for the promotion of traffic safety on the streets, roads, alleys and thoroughfares of the metropolitan government, including, but not limited to the purchase and installation of signs, signals, markings and other safety devices for regulation of traffic on such streets, roads, alleys and thoroughfares. (Ord. 91-1669 §§ 3 (part), 4, 1991; prior code § 24-1-116 (part))

5.32.020 License—Issuance conditions.

A. The owner, proprietor or operator of any automobile or automobile truck having a gross vehicle weight of eight thousand pounds or less and required to take out a license and pay the commercial vehicle regulatory license provided in Section 5.32.030 shall not be issued such a license unless the owner, proprietor or operator provides a valid certificate of vehicle compliance as required by the metropolitan health department regulations regarding vehicle condition and performance. This requirement shall not apply to automobiles or automobile trucks being titled and registered for the first time as evidenced by the submission of a manufacturer's certification of origin.

B. The owner, proprietor or operator of any wheeled vehicle required to take out a license and pay the commercial vehicle regulatory license provided in Section 5.32.030 shall not be issued such a license if the owner, proprietor or operator has outstanding at the time of application unpaid traffic or parking violation fines or outstanding warrants for traffic or parking violations. (Ord. 91-1669 § 3 (part), 1991; Ord. 88-289 § 1, 1988; prior code § 24-1-116 (part))

5.32.030 Amount of tax—Schedule.

A. For the purpose of defining, classifying and fixing the amount of the commercial vehicle regulatory license upon the various vehicles as set out in Sections 5.32.010 and 5.32.020, the provisions of this section shall govern.

B. A commercial vehicle regulatory license shall be paid as follows:

1. On every automobile, thirty-five horsepower or over, whether operated for hire or used for business or commercial purposes, per year	$66.00
2. On every automobile, operated for hire as a sightseeing vehicle, per year	66.00
3. On every motorcycle, for hire or for commercial purposes, per year	66.00
4. On every automobile truck, under two tons capacity, used exclusively in commercial hauling for owner and/or for hire, per year	66.00
5. On every automobile truck, two tons or over in capacity, used exclusively in commercial hauling for owner and/or for hire, per year	66.00
6. On every automobile truck under two tons capacity, used by a peddler, who shall also pay a privilege tax as provided by law, per year	66.00
7. On every automobile truck, two tons or over in capacity, used by a peddler, who shall also pay a privilege tax as provided by law, per year	66.00

(Ord. BL2005-666 § 1, 2005; Ord. 91-1669 §§ 1, 5, 1991; prior code § 24-1-117)

5.32.040 License tags—Display—Replacement if stolen.

A. The metropolitan treasurer shall furnish the owner, proprietor or operator of each vehicle licensed under this article with a metal tag or sign, showing the number of the vehicle and the month, day of the month and year that such license will expire; provided, that the tags or signs furnished by the metropolitan treasurer shall not be of the same size and shape for any two consecutive years.

B. Such tags or signs shall be permanently placed by the owner, proprietor or operator, if the vehicle is a dray, on the shaft, on the right side; if a wagon or cart, on the right side, unless the sides are movable, in which case it shall be placed on the frame on the right side; and if a hack, cab, omnibus, automobile, automobile truck, motorcycle or other licensed vehicle, in some conspicuous place on the right side of such vehicle.

C. In the event the decal, plate or tag is stolen from the owner or operator of the vehicle prior to attachment to the vehicle, the owner or operator may apply to the director of finance or his duly authorized representative for a replacement decal upon payment of a fee in the amount of two dollars. The application for a replacement decal shall be accompanied by a report from the metropolitan police department indicating the circumstances under which the decal was stolen.

D. Any person transferring a decal in violation of this section or fraudulently applying for a replacement decal shall be deemed guilty of a misdemeanor and subject to a maximum fine of fifty dollars. (Prior code § 24-1-118)

5.32.050 License tags—Replacement if lost.

All persons to whom license tags or signs have been regularly issued under this article, upon applying to the metropolitan government authorities for a duplicate and making affidavit that the original has been lost and cannot be found, shall pay into the metropolitan treasury two dollars, whereupon a duplicate shall be issued. (Prior code § 24-1-121)

5.32.060 License tags—Unauthorized use—Transfer.

No person shall use a license tag or sign upon a vehicle for which a license is required under this article, other than the license tag or sign properly issued to him, unless transferred to such person by the proper authorities on the books of the collections officer. (Prior code § 24-1-120)

5.32.070 Counterfeit license tags.

No person shall counterfeit or use on his vehicle a counterfeit tag or sign not issued by the metropolitan treasurer for his vehicle. (Prior code § 24-1-119)

5.32.080 Expiration of license—Proration of commercial vehicle regulatory license.

Licenses issued pursuant to this article shall expire on April 1st of each year, and it shall be the duty of the collections officer to issue to all persons applying for licenses on the various vehicles named, his receivable warrant on the metropolitan treasurer, stating the date of such licenses, the amount of commercial vehicle regulatory license to be paid therefor and that they shall expire on the first day of April following, the collections officer being authorized to compute the pro rata amount on the time for which such licenses are to be issued and to issue the licenses authorized by the warrant, but no proration shall be made by the collections officer for less than one month. (Ord. 91-1669 § 6, 1991; prior code § 24-1-122)

Article II. Passenger Vehicle and Motorcycle Privilege Tax

5.32.090 Definitions.

The following words and phrases, when used in this article, shall, for the purpose of this article, have the meanings respectively ascribed to them in this section:

"Antique motor vehicles" means motor vehicles over twenty-five years old which are owned solely as collectors' items and are used for participation in club activities, exhibits, tours, parades and similar uses, but in no event for general transportation.

"Duly authorized representative of the metropolitan director of finance" means any person, including but not limited to, the county court clerk of Nashville-Davidson County, Tennessee, authorized by the director of finance to sell the motor vehicle regulatory license.

"Metropolitan government" means the Metropolitan Government of Nashville and Davidson County.

"Metropolitan police officer" means every officer of the metropolitan police department authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

"Motorcycle" means every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground and with a motor which produces not less than five horsepower.

"Operator" means every person who drives or is in physical control of a motor vehicle upon a street or who is exercising control over a steering a vehicle.

"Owner" means any person, individual, firm, copartnership, corporation or other in whose name any vehicle shall be registered under the laws of the state, or any other such subdivision where such owner shall be domiciled.

"Passenger automobile" means every self-propelled device in, upon or by which any person or property is or may be transported upon a street or thoroughfare and which is designed primarily for the transportation of the driver and passengers and which is designed to travel on four or more wheels in contact with the ground; however, antique motor vehicles shall not be considered to be passenger automobiles.

"Street" or "thoroughfare" means the entire width between property lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular traffic and shall include, but not be limited to, every alley, roadway, highway or interstate highway within the area of the metropolitan government. (Prior code § 24-1-123)

5.32.100 Exceptions to article provisions—Free metro sticker provided when.

The provisions of this article shall not be applicable with respect to trucks, buses, taxicabs or automobiles for hire, sightseeing vehicles, and those business and commercial vehicles for which the privilege license or wheeled vehicle license authorized and required by law and imposed by the metropolitan government has been secured from the metropolitan government. (Ord. BL2013-579 §§ 1, 2, 2013; Ord. 90-1339 § 1 (24-4), 1990; prior code § 24-1-124)

5.32.110 License required—Fees—Exceptions.

A. There is levied an annual motor vehicle regulatory license in the amount of fifty-five dollars on each passenger automobile and fifty-five dollars on each motorcycle using the public streets and thoroughfares of the metropolitan government. It shall be prima facie evidence that a passenger automobile or motorcycle is subject to the provisions of this article if any one of the following four conditions are found to exist:

1. The owner or operator thereof is a resident of the metropolitan government area;

2. The passenger automobile or motorcycle bears registration plates of the State of Tennessee, Davidson County;

3. The owner or operator thereof, or his or her spouse has an established place of business, an office or headquarters, or is or becomes gainfully employed in the area of the metropolitan government;

4. The owner or operator thereof is a student, either part-time or full-time, at a university, college, school or other educational institution within the area of the metropolitan government.

B. A tourist or nonresident owner of a passenger automobile or motorcycle not falling in one of the categories listed in subsections A.1. through A.4. of this section shall be allowed to operate such vehicle upon the streets and thoroughfares of the metropolitan government for a period of sixty days without registering or obtaining a motor vehicle regulatory license and paying the fee therefor as provided herein.

C. With the exception of active military personnel, all other owners or operators who register their vehicle(s) within the metropolitan government area must pay all applicable regulatory license fees. (Ord. BL2013-579 § 3, 2013; Ord. BL2005-666 § 1, 2005; Ord. 91-1669 § 2, 1991; prior code § 24-1-125)

5.32.120 Registration required—Duties of county court clerk—Extension.

A. All owners or operators of such vehicles to which this article is applicable shall register such vehicles with the finance director of the metropolitan government, or his duly authorized representative as designated by him, annually on or before March 31st of each year and shall pay the fee levied herein, which fee shall become due and payable on March 31st of each year. The finance director of the metropolitan government, or his duly authorized representative as designated by him, is authorized to coordinate the issuance of the annual motor vehicle regulatory license, as provided for by this article, with the county court clerk, in the issuance of motor vehicle licenses provided for by the laws of the state.

B. If the director of finance authorizes the Davidson County court clerk to sell the motor vehicle regulatory license, the county court clerk shall be entitled to a fee of twenty-five cents for each motor vehicle regulatory license sold by him. Further, notwithstanding any other provision in this section to the contrary, the clerk shall coordinate the sale of the regulatory license so that the regulatory license is sold at the same places and during the same period of time as the Tennessee motor vehicle license tags. The county clerk's issuance of one sticker, as described in Tennessee Code Annotated Section 55-4-104(d)(1) shall signify payment of both the state and local taxes and fees.

C. From the effective date of this subsection, all owners or operators of vehicles to which this article is applied shall have an additional thirty-day period from the date set forth herein to purchase the motor vehicle registration license. (Ord. BL2013-579 § 4, 2013; prior code § 24-1-126)

5.32.130 Renewal fees—Proration—Exemption from Section 5.32.120.

A. The owners and operators of passenger automobiles are excepted from the application of the provisions of Section 5.32.120 on and after February 28, 1978. With respect to passenger automobiles, the finance director shall establish a system of motor vehicle regulatory license registration renewals at alternative intervals which will allow for such renewals and the payment of the fee levied herein compatible with the times and manners employed by the State of Tennessee in the renewal and purchase of new motor vehicle certificates of registration pursuant to the provisions of Tennessee Code Annotated, Section 55-4-104. The renewals issued under this alternative interval method shall be for a period of twelve months, except for the renewals issued in March of 1978.

B. The alternative interval method for fixing the date of the motor vehicle regulatory license registration renewals set out in subsection A. of this section and the payment of the fee levied herein shall be accomplished only after due notice to the registrants concerned. During the transition period for the renewals there shall be a grace period of fifteen days commencing April 1, 1978, and ending at midnight on April 15, 1978, to allow for the renewals expiring March 31, 1978. During this transition period the finance director, or his duly authorized representatives as designated by him, may receive applications for and issue renewal registrations and decals, plates or tags commencing February 1, 1978.

C. The finance director, or his duly authorized representative as designated by him, is authorized to accept applications for the renewals by mail and mail out the renewals and decals, plates or tags upon receipt of the

motor vehicle regulatory license registration renewal fee as levied from time to time, and an additional mail handling fee for each such renewal as shall be established by the finance director.

D. The motor vehicle regulatory license shall be prorated on a quarterly basis should an applicant be required to purchase a regulatory license in a month other than that required by subsection B. of this section. The quarterly proration shall be three dollars and seventy-five cents for each quarter or portion thereof until the applicant will be required to renew the license. The quarters shall be: January through March, April through June, July through September, and October through December. (Ord. 90-1339 § 1 (24-5), 1990; prior code § 24-1-127)

5.32.140 Reserved.

Editor's note—Ord. BL2013-579 § 5, passed Dec. 3, 2013, repealed § 5.32.140, which pertained to license tags—Issuance, display and transfer—Replacement if stolen and derived from prior Code § 24-1-128; Ord. 88-289 § 2, 1988.

5.32.150 Failure to display current license—Violation and penalty.

A. Every motor vehicle subject to the provisions of this article must display a current motor vehicle regulatory license on the first day of April each year and on each day thereafter until the renewal date thereof. Whenever any passenger automobile or motorcycle which does not display a current license certificate as provided herein is using the streets and thoroughfares of the metropolitan government, metropolitan police officers are authorized to issue a written notice to appear in court to the owner or operator of any such vehicle. Such notice shall be in the form of a traffic citation or traffic complaint citing the owner or operator of such vehicle to appear before a judge of the metropolitan general sessions court of Nashville and Davidson County, Tennessee, for failing to display a current motor vehicle regulatory license certificate. In the event the person to whom the notice is issued does not appear or pay the fine as levied by this article, then a judge of the metropolitan general sessions court of Nashville and Davidson County, Tennessee, shall issue a warrant for the person's arrest. Should any motor vehicle to which this article is applicable be parked or otherwise left unattended upon any street or thoroughfare within the metropolitan government, the metropolitan police officers are authorized to affix a traffic citation or complaint to the front windshield of any passenger automobile or an otherwise conspicuous place in any motorcycle and registered owner of such shall be responsible for the payment of the fine as levied by this article.

B. A violation of this section shall be punishable as a non-moving traffic violation according to the provisions of Section 1.01.030. (Ord. BL2010-793 § 3, 2010; Ord. 95-1329 § 2 (part), 1995; § 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part) of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 4 (12), 1990; prior code § 24-1-129)

5.32.160 Delinquent license fees.

The motor vehicle regulatory license fee levied under this article shall become delinquent on the date printed on the decal, plate or tag as the date of expiration. The finance director, or his duly authorized representative, shall issue distress warrants against the owners of passenger automobiles and motorcycles subject to the provisions of this article who have failed to pay such fee by such date and shall have such warrants levied as provided by law. The cost of such levy shall be paid by the owner of the vehicle on which such license fee is delinquent. (Prior code § 24-1-130)

5.32.170 Disposition of funds.

Any revenues from the motor vehicle regulatory license collected under this article shall be paid over to the metropolitan treasurer and shall be used to pay the costs of administration and enforcement of the provisions of this article, for the promotion of traffic safety and the installation of signs, signals, markings and other safety devices for regulating traffic on the streets, roads, alleys and thoroughfares of the metropolitan government. (Prior code § 24-1-131)

5.32.180 Violation and penalty.

It is unlawful for any person to violate any section of this article. Any person, upon conviction of a violation of this article, shall be punished by a fine of not less than five dollars nor more than fifty dollars. (Prior code § 24-1-132)

Article III. Rental Vehicle Surcharge

5.32.190 Surcharge authorized.

A. In addition to state tax provided in T.C.A. § 67-4-1901, the surcharge or tax of one percent of the gross proceeds derived from the lease or rental of any passenger motor vehicle, truck or trailer for a period of five days or less; provided, that said surcharge or tax will not apply to any automobile rented as a replacement vehicle, the cost of which is covered by insurance or by a business that rents a truck or trailer for the purpose of transporting goods, or by any individual or business that rents a vehicle as a replacement while the renter's vehicle is being repaired, replaced or serviced; provided further, that the individual presents to the renter upon return of the rented vehicle a copy of the repair or service invoice

or signs a statement under penalty of perjury that the lease or rental of the vehicle is used as a replacement for a vehicle that is being repaired, replaced or serviced. The surcharge or tax shall not apply to any vehicle rental transaction in which an entity whose principal business activity is the sale or service of new and used motor vehicles is the renter. This surcharge or tax shall apply to the gross proceeds from the rental agreement, excluding any sales tax imposed by Chapter 6 of the Tennessee Code Annotated. The surcharge or tax shall also be subject to the exemptions provided by T.C.A. § 67-4-1906. The surcharge or tax shall not be subject to a credit provided by T.C.A. § 67-4-1903 and shall be implemented consistent with existing tax policies and procedures of the department of revenue and of the remainder of this chapter. The surcharge or tax shall be remitted to the department of finance.

B. All revenue received by the metropolitan government from this surcharge or tax shall be deposited into a metropolitan government fund entitled "The Convention Center Fund," which shall be used for the purpose of paying costs associated with modification or construction of a publicly-owned convention center in excess of four hundred million dollars of costs within the territory of the metropolitan government. If the revenues from such surcharge or tax in any fiscal year exceed the total of such debt service requirements for that year, such surplus revenue thus accruing shall be retained by the metropolitan government as a reserve fund for future debt service requirements.

C. The surcharge for rental vehicles authorized pursuant to this article shall terminate once the total bonded indebtedness incurred for the construction of a convention center facility by the metropolitan government has been paid in full as to bond principal and interest, including expenses of bond sale or sales, and the metropolitan council has repealed the provisions of this article. Provided however, that any funds remaining in the reserve fund after all obligations imposed under the provisions of this section have been fulfilled, shall be used by the governmental board or agency responsible for operation of the convention center for use by it in the promotion and advertisement of the convention center facilities. (Ord. BL2012-156 § 6, 2012; Ord. BL2007-1557 § 5, 2007)

Division III. Urban Services District

Chapter 5.36

PRIVILEGE TAXES

Sections:

5.36.010 Tax imposed—Adopted—Copies on file.
5.36.020 Intent of provisions.
5.36.030 Collection.
5.36.040 Disposition of funds.
5.36.050 Ad valorem tax not affected by chapter provisions.
5.36.060 Alcoholic beverage retail sales—Consumption on premises.

5.36.010 Tax imposed—Adopted—Copies on file.

A. Section 67-4-701, et seq., of the Tennessee Code Annotated, as amended, is adopted by reference, and the rates set out therein are incorporated in this code. Privilege taxes are levied in the same amount and at the same rate as contained in Section 67-4-701, et seq., as amended, of the Tennessee Code Annotated.

B. Three copies of Section 67-4-701, et seq., of the Tennessee Code Annotated, as amended, are on file in the office of the metropolitan clerk. (Ord. 90-1339 § 1 (24-13), 1990; prior code § 24-2-24)

5.36.020 Intent of provisions.

It is the intention of the metropolitan county council that this chapter shall be construed liberally to carry out the intent of this chapter, which is to levy all privilege taxes which, by general law, may be levied by municipal corporations. (Prior code § 24-2-27)

5.36.030 Collection.

It is the intention of the metropolitan county council that all privileges and privilege tax rates established in Section 67-4-701, et seq., as amended, of the Tennessee Code Annotated, and which, by general law, counties are entitled to collect, shall be collected by the county court clerk or the collections officer in the same amounts and in the same manner as provided by general law or the Metropolitan Charter. (Ord. 90-1339 § 1 (24-14), 1990; prior code § 24-2-25)

5.36.040 Disposition of funds.

The proceeds derived from the privileges taxed herein shall be deposited to the general fund of the urban services district. (Prior code § 24-2-26)

5.36.050 Ad valorem tax not affected by chapter provisions.

It is not the intention of the metropolitan county council, by adopting Section 67-4-701, et seq., as amended, of the Tennessee Code Annotated, set out in Section 5.36.010, to affect in any way the imposition and collection of any lawful ad valorem tax imposed on personalty or real property. (Prior code § 24-2-28)

5.36.060 Alcoholic beverage retail sales—Consumption on premises.

A. There is levied the following privilege taxes on every person who exercises within the urban services district the privilege of engaging in the business of selling at retail alcoholic beverages for consumption on the premises:

1. Common carrier, for each dining car, plane, ship, boat or other vehicle . . .	$ 100.00
2. Private club	300.00
3. Hotel and motel.	1,000.00
4. Restaurant, according to seating capacity, on licensed premises:	
75—125 seats	600.00
126—175 seats	750.00
176—225 seats	800.00
226—275 seats	900.00
276 seats and over	1,000.00

B. Such taxes shall be payable annually to and collected by the director of finance or his designated representative. Upon payment of the privilege tax as set out in subsection A of this section, the finance director or his designated representative shall issue a receipt for the payment of such tax, which shall be displayed by the holder thereof at all times in a conspicuous place in the permit holder's establishment licensed under Tennessee Code Annotated, Section 57-4-101, et seq.

C. It is the intention of the metropolitan council that this section shall be construed liberally to carry out its intent, which is to levy such privilege taxes which, by Section 57-4-301, et seq., as amended, of the Tennessee Code Annotated, may be levied within the urban services district, such privilege taxes to be levied in the same manner and to the same extent as provided by law. The words, phrases or terms as defined in Chapter 1 of Title 57 of the Tennessee Code Annotated (T.C.A. § 57-1-101 et seq.), as amended, shall have the same definition ascribed to them when used in this section. (Ord. 90-1339 § 1 (24-11), 1990; prior code § 24-2-16.1)

Chapter 5.40

TAX ON UTILITY POLES IN STREETS

Sections:

5.40.010 **Rental fee required when—Amount—Penalty for nonpayment.**

5.40.010 Rental fee required when—Amount—Penalty for nonpayment.

A. Every person doing a telegraph, postal telegraph or telephone business in the urban services district and occupying the streets, alleys or public grounds therein with telegraph poles and wires shall, as a condition to such further occupancy, pay to the metropolitan government, annually, a rental of three dollars for each of such poles.

B. Pole rentals shall be for each calendar year beginning with January 1st and shall be paid in advance, on or before January 1st of each year.

C. In addition to the remedies of the metropolitan government to collect such rentals as any other debt owing the metropolitan government, the failure and refusal of any person to pay such rentals or any part thereof, on demand, shall authorize the mayor to revoke the license to occupy the streets, alley or public grounds with such poles and wires. (Prior code § 15-2-1)

Title 6

BUSINESS LICENSES AND REGULATIONS

Chapters:

Division I. General Regulations

6.04 Advertising Signs and Other Advertising Methods
6.06 After Hours Establishments
6.08 Cable Communications Franchise and Regulations
6.10 Reserved
6.12 Reserved
6.14 Foreign Trade Zones
6.16 Reserved
6.20 Electricians, Electrical Contractors and Equipment Installers
6.24 Films and Live Entertainment
6.26 Franchises for Fiber Optic Communications Services
6.28 Hotels and Roominghouses
6.32 Hucksters and Peddlers
6.40 Reserved
6.42 Automobile Repair and Service
6.44 Moving Companies
6.48 Pawnbrokers and Secondhand Dealers
6.52 Plumbers, and Plumbing and Septic Tank Contractors
6.54 Sexually Oriented Businesses
6.56 Reserved
6.60 Rendering Plants
6.64 Commercial Solicitors
6.68 Solid Fuel Sales or Hauling
6.72 Taxicabs
6.73 Low Speed Vehicles
6.74 Other Passenger Vehicles for Hire
6.75 Pedicabs and Pedal Carriages
6.76 Weights and Measures
6.77 Entertainment Transportation
6.78 Seated Sightseeing Vehicles
6.80 Wrecker and Towing Services
6.81 Booting Services
6.82 Business Transactions After a Natural Disaster

Division II. Urban Services District Regulations

6.84 Auctions and Auctioneers
6.88 Auctions Sales of Automobiles or Jewelry
6.92 Bankruptcy, Close-Out and Similar Sales
6.100 Pawnbrokers, Secondhand Dealers and Junk Dealers
6.104 Reserved

Division I. General Regulations

Chapter 6.04

ADVERTISING SIGNS AND OTHER ADVERTISING METHODS

Sections:

6.04.010	**Prohibited on posts and poles.**
6.04.020	**Prohibited within the public right-of-way and on public property.**
6.04.030	**Exemptions from provisions of Sections 6.04.010 and 6.04.020.**
6.04.035	**Enforcement.**
6.04.040	**Consent of property owner and occupant required when.**
6.04.050	**Circulars or handbills—Distribution permitted when.**
6.04.060	**Conflict of provisions.**
6.04.070	**Removing or defacing lawful advertising prohibited.**
6.04.080	**Metal signs on street markers permitted when.**
6.04.090	**Loudspeakers and noisy instruments prohibited—Exceptions.**
6.04.100	**Unauthorized advertisement and redistribution.**

6.04.010 Prohibited on posts and poles.

It is unlawful for any person to affix in any manner any sign, placard, poster, card, banner or other indicia of the interests of any person, group or organization on any post or pole, including, but not limited to, light and telephone poles, on any street, sidewalk, thoroughfare or public right-of-way within the jurisdiction of the metropolitan government. (Prior code § 3-1-1)

6.04.020 Prohibited within the public right-of-way and on public property.

A. It is unlawful for any person to attach, place, paint, or affix any sign or advertisement, whether permanent or temporary, within any public right-of-way within the jurisdiction of the metropolitan government.

B. It is unlawful for any person to attach, place, paint, or affix any sign or advertisement, whether permanent or temporary, on any metropolitan government property without the express permission of the metropolitan government. (Ord. BL2009-433 § 1, 2009; prior code § 3-1-2)

6.04.030 Exemptions from provisions of Sections 6.04.010 and 6.04.020.

The metropolitan traffic and parking commission, the metropolitan board of parks and recreation, the department of metropolitan police, the department of fire, the Nashville Transit Authority and all other departments, agencies, boards or commissions of the metropolitan government and the proper agencies of the state and of the United States of America are expressly exempted from the provisions of Sections 6.04.010 and 6.04.020 in the performance of their respective functions directed toward the orderly movement of traffic and pedestrians of the streets, sidewalks and other thoroughfares within the jurisdiction of the metropolitan government and in making other lawful and proper use of such streets, sidewalks and other thoroughfares. (Prior code § 3-1-3)

6.04.035 Enforcement.

A. Responsible person. The person responsible for any signs or advertisements in violation of Sections 6.04.010 and 6.04.020 is defined as follows:

1. In the case of a sign or advertisement advertising a service, product, dwelling, or event: the person, business, company, or other entity hosting or organizing the event advertised or selling the services, dwellings, products, or events advertised, or the person, business, company or other entity responsible for attaching, placing, painting, writing, stamping or pasting any sign or advertisement, shall be deemed the responsible person. That is, unless such person, business, company, or other entity notifies the director of the department of codes administration and the director of the department of public works of another person, business, company, or other entity who is responsible. In such case, the person shall provide the name, address, and signed consent of such other responsible person, business, company, or other entity within seven calendar days after a citation is issued.

2. In the case of a campaign sign for political office, the individual whose candidacy the sign supports shall be deemed the responsible person for posting campaign signs, unless he or she notifies the director of the department of codes administration and the director of the department of public works of another person, business, company, or other entity who is responsible, in the manner described in subsection A.1 of this section. The director of the department of codes administration or the director of the department of public works, or their designee(s), may determine that the responsible person under this section is a committee or group supporting the individual candidate and affiliated with the individual candidate.

3. In the case of a campaign sign regarding a ballot measure, the president or chief officer of the committee or group supporting or opposing such ballot measure shall be deemed the person responsible for posting campaign signs, unless he or she first notifies the director of the department of codes administration and the director of the department of public works of another person, business, company, or other entity who is responsible, in the manner described in subsection A.1 of this section.

4. In the case of any other sign or advertisement not described in subsections A.1 through A.3 of this section, the responsible person shall be deemed to be the person, business, company, or other entity who is named on the sign or advertisement, or whose phone number, web site address, physical address, or electronic mail ("e-mail") address appears on the sign or advertisement, unless such person, business, company, or other entity notifies the director of department of codes administration and the director of the department of public works of another person, business, company, or other entity who is responsible, in the manner described in subsection A.1.

B. Removal of signs. In addition to the enforcement described above, the metropolitan department of public works and department of water and sewerage services personnel shall have the authority to summarily remove any notice, sign, or written material found in violation of this section. Further, it is not a violation of this section for any person to remove an illegally placed sign, advertisement or other written material which is in violation of this chapter.

C. Penalty. Violation of this chapter shall subject the responsible person who placed or caused to be placed the sign(s), advertisement(s) or other written material to a civil penalty of fifty dollars per sign, advertisement or other written material placed in violation of this chapter. Both the department of codes administration and the department of public works shall have the authority to issue a citation for violations of this chapter. If a violator has removed the sign, handbill, advertisement or other matter within seven days of receipt of a citation, then the department that issued the citation shall have the authority to declare the citation null and void and shall notify the court to that effect, if applicable. Each and every violation shall constitute a separate and distinct offense.

D. Nothing in this section is intended to hold a person/company engaged in the business of sign printing or sign making responsible for signs printed or made for their customers, unless the sign company causes the sign(s) to be illegally placed within the public right-of-way. (Ord. BL2011-962 §§ 1, 2, 2011; Amdt. 1 to Ord. BL2009-433 § 2, 2009; Ord. BL2009-433 § 2, 2009)

6.04.040 Consent of property owner and occupant required when.

It is unlawful for any person to paint or mark upon any wall or fence or upon any pavement or step or upon other objects about the streets or other public places, any advertisement or any other matter to disfigure the same without the consent, previously obtained, of the owner and of the occupant for the time being of the property to which the object so disfigured may pertain. (Prior code § 3-1-4)

6.04.050 Circulars or handbills—Distribution permitted when.

Any person residing and doing business in the area of the metropolitan government may, without being required to take out a license, distribute circulars or handbills advertising the business in which such person is directly engaged. (Prior code § 3-1-5)

6.04.060 Conflict of provisions.

Nothing contained in Sections 6.04.030, 6.04.040 and 6.04.050 shall be construed to authorize any person to paint or erect signs, post bills or distribute circulars or other advertising material in a manner or in places not permitted by existing laws or ordinances. (Prior code § 3-1-6)

6.04.070 Removing or defacing lawful advertising prohibited.

No person shall wilfully or maliciously tear down, deface, destroy or cover up any handbill, placard or poster put upon any place lawfully used for such purpose. (Prior code § 3-1-7)

6.04.080 Metal signs on street markers permitted when.

A. It is lawful for any place of worship or other nonprofit organization operated solely for the public welfare to place or cause to be placed on top of street markers metal signs announcing, pointing to or otherwise indicating the location of such places of worship or organizations. Such signs shall be securely fastened in an approved manner on the top of such street markers so as not to create a hazard to persons or property or to damage or deface the street marker, and shall be not more than twenty-four inches wide nor more than eighteen inches high, shall be at least eighteen inches in from the vertical plane of the curb and at least nine feet above the average grade of the sidewalk adjacent to the marker on which the sign is placed. Such signs shall not be placed over a traveled way.

B. No such sign shall be placed so as to interfere with traffic-control devices and signs, nor more than two blocks distant from the organization which it is announcing. The placing of such signs shall be removed within three days after notice to do so by the director of public works. (Ord. BL2017-654 § 2, 2017; prior code § 3-1-8)

6.04.090 Loudspeakers and noisy instruments prohibited—Exceptions.

It is unlawful to advertise goods and wares, by auction or otherwise, by use of loudspeakers, ringing of bells, beating of drums, gongs or by any other loud and noisy modes of advertising or the use of such means to draw attention to, or to advertise, any commercial, industrial, private or other enterprise; provided, that this section shall not be construed to prohibit the using of bands which may parade the streets and play pursuant to permits issued by the chief of police. (Prior code § 3-1-9)

6.04.100 Unauthorized advertisement and redistribution.

A. Except as provided in subsection C. of this section, it shall be unlawful for any person to attach or insert an unauthorized advertisement in a newspaper, whether alone or in concert with another, and redistribute such unauthorized advertisement to the public.

B. As used in this section:

1. "Unauthorized advertisement" means any form of representation or communication, including any handbill, newsletter, pamphlet, or notice that contains any letters, words, or pictorial representation that is attached to or inserted in a newspaper without a contractual agreement between the publisher and an advertiser.

2. "Newspaper" includes any newspaper, magazine, periodical, or other tangible publication, whether offered for retail sale or distributed without charge.

C. This section does not apply if the publisher or authorized distributor of the newspaper consents to the attachment or insertion of the advertisement, or if a newspaper distributor is directed to insert an unauthorized advertisement by a person or company supplying the newspapers and is not aware that the advertisement is unauthorized. (Ord. BL2009-412 § 1, 2009)

Chapter 6.06

AFTER HOURS ESTABLISHMENTS

Sections:

6.06.010	**Definitions.**
6.06.020	**Registration, permit and fees required.**
6.06.030	**Application for after hours establishment permit—Requirements and conditions.**
6.06.040	**Permit—Issuance conditions.**
6.06.050	**Department of codes administration—Powers and duties.**
6.06.060	**Reserved.**
6.06.070	**Prohibited acts, conduct and persons.**
6.06.080	**Security to be provided by after hours establishment permit holders.**
6.06.090	**Revocation of permit.**
6.06.100	**Appeals for denial or revocation of permit—Hearings.**
6.06.110	**Mandatory police checks of after hours establishments.**
6.06.120	**Severability.**

6.06.010 Definitions.

[The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

"After hours establishment" means any establishment open to the general public at any time between the hours of 3:00 a.m. and 6:00 a.m., which has for its primary purpose entertainment, teen clubs, dance clubs, and establishments which feature the playing of live or recorded music. If the establishment requires a cover charge upon entry, contains a dance floor, or uses either a disc jockey or a live band, it shall be considered an 'after hours establishment,' regardless of whether the establishment serves or sells prepared food for consumption.

"Department" means the metropolitan department of codes administration.

"Director" means the director of the metropolitan department of codes administration. (Amdt. 1 to Ord. BL2008-344 § 1, 2008; Ord. BL2008-344 § 1, 2008; Ord. BL2007-1546 § 1, 2007)

6.06.020 Registration, permit and fees required.

It is unlawful to operate any after hours establishment within the metropolitan government area unless a permit has been issued by the department for the operation of such after hours establishment in accordance with the provisions of this chapter after payment of an application fee of two hundred fifty dollars, with a one hundred dollar annual fee for the permit, plus the cost for providing the required background checks as determined by the director. (Ord. BL2007-1546 § 1, 2007)

6.06.030 Application for after hours establishment permit—Requirements and conditions.

A. The owner of any business desiring to operate an after hours establishment, as defined in Section 6.06.010, shall file in person with the department a written application, under oath, for a permit. No permit shall be issued until the department has approved the written application, which shall contain questions necessary to the determination of whether the applicant has met all laws of this state and all provisions of this Code and other ordinances of the metropolitan government then in effect. The form of such application shall be prescribed by the department and approved by the metropolitan department of law.

B. To be eligible for a permit, the applicant shall provide all of the following information in the application:

1. Name of applicant;
2. Name of applicant's business;
3. Location of business by street address;
4. All persons, firms, corporations, limited liability companies, partnerships, joint-stock companies, syndicates, or associations having at least a five percent interest in the applicant establishment;
5. Identity and address of a representative to receive annual tax notices;
6. Such other information, relevant and material to the protection of the health, safety and morals of the inhabitants of the metropolitan government area as may be required by the department, in its discretion.

C. An applicant or permit holder shall amend or supplement the information provided in its application promptly if a change in circumstances affects the responses in its application.

D. Permits shall be issued to the owner of the business, whether a person, firm, corporation, limited liability company, partnership, joint-stock company, syndicate, or association.

E. The applicant shall submit an affidavit at the time the application is filed stating that:

1. No person, firm, corporation, limited liability company, partnership, joint-stock company, syndicate, or association having at least a five percent interest in the establishment has been convicted of any crime involving moral turpitude within the past ten years; and

2. The applicant has not had a beer permit or license for the sale of intoxicating beverages suspended or revoked within the past five years. If the department deems it necessary, the department may submit the necessary information of each applicant for an after hours establishment permit to the police department for the purpose of ascertaining whether the applicant has ever been arrested or convicted of any offense which would prohibit the issuance of a permit. In the alternative, the police department may provide the department with computer access to their records revealing the required information and provide assistance so that the department can conduct its own checks. (Ord. BL2008-116 §§ 1, 2, 2008; Ord. BL2007-1546 § 1, 2007)

6.06.040 Permit—Issuance conditions.

No permit for the operation of an after-hours establishment shall be issued until it shall be found that the place for which the same is issued complies with and conforms to all laws, ordinances, health and fire regulations applicable thereto, is properly ventilated and supplied with sufficient toilet conveniences and is a safe and proper place for the purpose for which it shall be used. The permit for after hours establishment shall be in writing and shall be posted in a conspicuous place in the establishment at all times when the same shall be operated. Further, no after hours establishment permit shall be issued for an applicant establishment if any person, firm, corporation, limited liability company, partnership, joint-stock company, syndicate, or association having at least a five percent interest in the establishment has been convicted of any crime involving moral turpitude within the past ten years. Moral turpitude shall be defined as all sex-related crimes, premeditated murder, illegally selling class 1 and class 2 controlled substances, embezzlement and crimes involving dishonesty. (Ord. BL2016-238 § 1, 2016; Ord. BL2008-116 §§ 3, 4, 2008; Ord. BL2007-1546 § 1, 2007)

6.06.050 Department of codes administration—Powers and duties.

A. The department shall be charged with the duty of supplying application forms for permits for permission to operate an after hours establishment and such forms shall contain such pertinent questions to be answered by the applicant, and to be sworn to, as is deemed to be necessary and proper by the director.

B. The director shall have the authority to adopt and implement rules and regulations, not inconsistent with the chapter, which will effectuate the purposes of this chapter and secure compliance with its provisions to protect the health and safety of the inhabitants within the area of the metropolitan government. (Ord. BL2007-1546 § 1, 2007)

6.06.060 Reserved.

Editor's note—Ord. BL2008-344, § 2, adopted Dec. 16, 2008, repealed § 6.06.060, which pertained to minors prohibited when and derived from Ord. BL2007-1546 § 1, 2007.

6.06.070 Prohibited acts, conduct and persons.

A. It is unlawful for any person to whom an after hours establishment permit has been issued to allow in such after hours establishment any indecent act to be committed or any disorder or conduct of a gross, violent or vulgar character. It is further unlawful for any after hours establishment permit holder, or any employee of the establishment, to knowingly or recklessly allow any patrons to enter the premises with a fake identification card or to bring any illegal drug onto the premises.

B. It is unlawful for any person to whom an after hours establishment permit has been issued or their agent, employee or subcontractor to knowingly allow or through due diligence permit any person to bring alcoholic beverages upon the premises or to allow any person to consume alcoholic beverages upon the premises. Failure by a permit holder to abide by this provision shall make such permit holder strictly liable for any property damage or personal injuries caused by any person that has consumed alcoholic beverages on the premises of the establishment. The director shall revoke the permit for any permit holder found to be in violation of the provisions of this subsection B.

C. It is unlawful for any person to whom an after hours establishment permit has been issued to allow or permit any person, other than security personnel or off-duty police officers, to bring any firearm or knife onto the premises of the establishment. (Ord. BL2008-344 § 3, 2008; Ord. BL2008-116 § 5, 2008; Ord. BL2007-1546 § 1, 2007)

6.06.080 Security to be provided by after hours establishment permit holders.

A. All after hours establishment permit holders shall be responsible for providing an adequate number of security officers licensed pursuant to chapter 35 of Title 62 of the Tennessee Code Annotated to effectively

patrol the premises, including any parking facilities owned or maintained by the establishment for use of its patrons, and maintain order based on the maximum occupancy of the premises as determined by the metropolitan fire marshal.

B. The applicant shall submit a security plan at the time the application is filed. No after hours permit shall be issued until the chief of police or his designee approves the security plan submitted by the applicant. Further, the metropolitan police department shall monitor the security plans for after hours establishments on an on-going basis. In the event the chief of police or his designee determines that a security plan for a particular after hours establishment is no longer sufficient, the police department shall notify the department of codes administration. Upon receiving notice by the police department that a security plan is no longer sufficient, the department of codes administration shall notify the permit holder that a revised security plan must be submitted. If such revised security plan is not received by the department of codes administration within seven days from the date the department sends a notice to the permit holder, the director of the department of codes administration or his designee shall proceed with revocation of the permit pursuant to Section 6.06.090 of this chapter. (Ord. BL2007-1546 § 1, 2007)

6.06.090 Revocation of permit.

A. The permit to operate any after hours establishment may be revoked for the violation of any provision of this chapter or provision of this Code or other ordinance or law relating to such places, and upon the revocation of the permit to operate such after hours establishment, at least three months shall elapse before another permit shall be granted to the manager, owner or lessee of such establishment to operate the same.

B. Before revoking any permit, the director shall give the permit holder fifteen days written notice of the alleged violation(s) against him/her. In such cases the charges shall be specific and in writing. (Ord. BL2007-1546 § 1, 2007)

6.06.100 Appeals for denial or revocation of permit—Hearings.

Upon the denial or revocation of an after hours permit by the director, the applicant or permit hold shall be entitled to a hearing in accordance with the provisions of this section:

A. A request for a hearing shall be in writing and filed with the director within five days of the director's decision to deny an initial application or renewal, or to revoke a permit.

B. The director shall notify the applicant or permit holder by United States Mail of the hearing date.

C. The hearing date shall fall within twenty-five days from the date the director receives the request, unless the applicant requests a later date and the director grants the request.

D. The applicant or permit holder shall have a minimum of five days of notice before a hearing may be held. An applicant or permit holder is considered notified upon their receipt of notification from the director.

E. At the hearing, the applicant or permit holder may present evidence as to why his/her initial application or renewal should not be denied, or why his/her permit should not be revoked.

F. The director has the authority to subpoena witnesses to testify before hearings.

G. Within five days of the hearing the director shall state in writing the reason for the director's decision that will either affirm or reject the denial of an initial application, renewal, or the revocation of a permit and mail it by United States Mail to the address of the applicant as listed on the application.

H. Any denial after a hearing of an initial application for a permit may be appealed by writ of certiorari to the Circuit or Chancery Courts of Davidson County within sixty days from the date of the hearing. (Ord. BL2007-1546 § 1, 2007)

6.06.110 Mandatory police checks of after hours establishments.

The metropolitan police department shall regularly enter the premises of after hours establishments, on a basis to be determined by the chief of police, to ensure the establishment is complying with the requirements of this chapter. (Ord. BL2007-1546 § 1, 2007)

6.06.120 Severability.

If any provision or clause of this chapter or the application thereof to any person or circumstance is held to be unenforceable by a court of competent jurisdiction, such clause or provision and the remainder of this chapter shall remain effective and enforceable to the fullest extent allowed by law, and all clauses and provisions of this chapter are hereby declared to be severable. (Ord. BL2007-1546 § 1, 2007)

Chapter 6.08

CABLE COMMUNICATIONS FRANCHISE AND REGULATIONS

Sections:

6.08.005	**Findings and intent of the council.**
6.08.010	**General provisions.**
6.08.020	**Definitions and word usage.**
6.08.030	**Grant of franchise.**
6.08.040	**Applications for grant, renewal, or modification of franchises.**
6.08.050	**Reserved.**
6.08.060	**System facilities, equipment, and services.**
6.08.070	**Operation and reporting provisions.**
6.08.080	**Regulatory structure.**
6.08.090	**Consumer protection and customer service.**
6.08.100	**Reserved.**
6.08.110	**Reserved.**
6.08.120	**Insurance—Surety—Indemnification.**
6.08.130	**Performance guarantees and remedies.**
6.08.140	**Reserved.**
6.08.150	**Discrimination prohibited.**
6.08.160	**Miscellaneous provisions.**

6.08.005 Findings and intent of the council.

The Council of the Metropolitan Government of Nashville and Davidson County finds that the development of cable television and communications systems has conferred substantial benefits upon the people of Metropolitan Nashville and Davidson County. The council further finds that the continuation and expansion of such systems, in terms of area covered and services provided, is in the public interest of Metropolitan Nashville and Davidson County. Due to the complex and rapidly changing technology associated with cable television, the council further finds that the public convenience, safety, and general welfare can best be served by establishing regulatory powers within the limits allowed by federal law and Tennessee law, which should be vested in the council or such persons as the council shall designate. It is the intent of this chapter and subsequent amendments to provide for and specify the means to best satisfy the public interest and public purpose in these matters, and any franchise issued pursuant to this chapter shall be deemed to include these findings as an integral part thereof. (Ord. 95-1368 § 2 (part), 1995)

6.08.010 General provisions.

A. Title. This chapter shall be referred to as "Nashville-Davidson County Cable Communications Franchise and Regulatory Ordinance."

B. Purpose. The metropolitan county council of Nashville and Davidson County finds that the development of cable television systems has the potential to be of great benefit to the people of Metropolitan Nashville. Cable technology is rapidly changing, and cable plays an essential role as part of Metropolitan Nashville's basic infrastructure. Cable television systems extensively make use of scarce and valuable public rights-of-way, in a manner different from the way in which the general public uses them, and in a manner reserved primarily for those who provide services to the public, such as utility companies. The grant of a franchise has the effect of giving the holder a special privilege that confers significant economic benefits. This creates a need to ensure that the holder of a franchise exercises it in the public trust. The council, therefore, finds that public convenience, safety, and general welfare can best be served by establishing regulatory powers vested in Metropolitan Nashville or such persons as the council so designates to protect the public and to ensure that any franchise granted is operated in the public interest. In light of the foregoing, the following goals, among others, underlie the provisions set forth in this chapter:

1. Cable should be available to as many Metropolitan Nashville residents as possible.

2. A cable system should be capable of accommodating both present and reasonably foreseeable future cable-related needs of the community.

3. A cable system should be constructed and maintained during a franchise term so that changes in technology may be integrated to the maximum extent possible into existing system facilities, taking into account the costs of implementing such changes.

4. A cable system should be responsive to the needs and interests of the local community.

The council intends that all provisions set forth in this chapter be construed to serve the public interest and the foregoing public purposes, and that any franchise issued pursuant to this chapter be construed to include the foregoing findings and public purposes as integral parts thereof. (Ord. 95-1368 § 2 (part), 1995)

6.08.020 Definitions and word usage.

For the purposes of this chapter, the following terms, phrases, words, and abbreviations shall have the meanings given herein, unless otherwise expressly stated. When not inconsistent with the context, words used in the present tense include the future tense; words in the plural number include the singular number, and words in

the singular number include the plural number; and the masculine gender includes the feminine gender. The words "shall" and "will" are mandatory, and "may" is permissive. Unless otherwise expressly stated, words not defined herein shall be given the meaning set forth in Title 47 of the United States Code, Chapter 5, Subchapter V-A, 47 U.S.C. Sections 521 et seq., as amended, and, if not defined therein, their common and ordinary meaning.

"Access channel" means any channel on a cable system set aside by a franchisee for public, educational, or governmental use.

"Affiliate" means any person who owns or controls, is owned or controlled by, or is under common ownership or control with a franchisee. For purposes of Sections 6.08.040(B)(3)(g) and (D)(1), 6.08.070(A)(1), (C)(1) (except for Section 6.08.070(C)(1)(a) as it relates to Gross Revenues) and (C)(3)(b), and 6.08.140(B)(2)(d) hereof only, "affiliate" means only such persons who are directly involved in the management or operation of the cable system in Metropolitan Nashville.

"Basic service" means any service tier that includes the retransmission of local television broadcast signals.

"Cable act" means the Cable Communications Policy Act of 1984, 47 U.S.C. Sections 521 et seq., as amended from time to time.

"CATV special committee" means the committee specifically described in Section 6.08.080(A).

"Council" means the present metropolitan county council of the metropolitan government or any successor to the legislative powers of the present council.

"Educational access channel" means any channel on a cable system set aside by a franchisee for educational use.

"FCC" means the Federal Communications Commission, its designee, or any successor governmental entity thereto.

"Franchise" means a nonexclusive authorization granted in accordance with this chapter to construct, operate, and maintain a cable system along the public rights-of-way and provide cable service within all or a specified area of Metropolitan Nashville. Any such authorization, in whatever form granted, shall not mean or include or be in lieu of, any franchise or permit required for the privilege of transacting and carrying on a business within Metropolitan Nashville as required by the ordinances and laws of Metropolitan Nashville, or for attaching devices to poles or other structures, whether owned by Metropolitan Nashville, Nashville Electric Services or a private entity, or for excavating or performing other work in or along public rights-of-way. Unless a franchise agreement so provides, a franchise shall not include, or be in lieu of, the franchise required by Ordinance No. 094-1103.

"Franchise agreement" means a contract entered into in accordance with the provisions of this chapter between Metropolitan Nashville and a franchisee that sets forth, subject to this chapter, the terms and conditions under which a franchise will be exercised.

"Franchise area" means the area of Metropolitan Nashville that a franchisee is authorized to serve by its franchise agreement.

"Franchisee" means a natural person, partnership, domestic or foreign corporation, association, joint venture, or organization of any kind that has been granted a cable communications franchise by the mayor and council of Metropolitan Nashville.

"Governmental access channel" means any channel on a cable system set aside by a franchisee for government use.

"Metropolitan Nashville" means the Metropolitan Government of Nashville and Davidson County.

"Person" means an individual, partnership, association, joint stock company, organization, corporation, or any lawful successor thereto or transferee thereof, but such term does not include Metropolitan Nashville.

"Public access channel" means any channel on a cable system set aside by a franchisee for use by the general public, including groups and individuals, and which is available for such use on a nondiscriminatory basis.

"Sale" means any sale, exchange, or barter transaction.

"Section" means any section, subsection or provision of this chapter.

"Subscriber" means any person who legally receives any service delivered over a cable system.

"Transfer" means any transaction in which: (1) any ownership or other right, title, or interest of fifty percent or more in a franchisee, its franchise, or its cable system is sold, assigned, leased, sublet, or otherwise transferred, either directly or indirectly, in whole or in part, or any lesser ownership, right, title or interest is sold, assigned, leased, sublet, or otherwise transferred to a person holding a minority interest in a franchisee, its franchise, or its cable system such that such person would hold fifty percent or more interest upon consummation of such transaction; or (2) there is any change, acquisition, or transfer of control of the franchisee; or (3) the rights and/or obligations held by the franchisee under its franchise are transferred, directly or indirectly, to another party; or (4) any change or substitution occurs in the managing general partners of the franchisee.

"Control" for purposes of this section means the legal or practical ability to exert actual working control over the affairs of a franchisee, franchisee or applicant, either

directly or indirectly, whether by contractual agreement, majority ownership interest, any lesser ownership interest, or in any other manner.

"Transmission of video programming directly to customers" means the delivery of programming to customer premises equipment, whether or not that programming is selected, controlled, or marketed to customers by the entity that delivers it.

"User" means a person or organization utilizing a channel or equipment and facilities for purposes of producing or transmitting material, as contrasted with the receipt thereof in the capacity of a subscriber. (Ord. BL2013-396 § 1, 2013; Ord. 95-1368 § 2 (part), 1995)

6.08.030 Grant of franchise.

A. Grant of Franchise. Metropolitan Nashville may grant one or more cable television franchises, and each such franchise shall be awarded in accordance with and subject to the provisions of this chapter. This chapter may be amended from time to time, and in no event shall this chapter be considered a contract between Metropolitan Nashville and a franchisee such that Metropolitan Nashville would be prohibited from amending any provision hereof; provided, however, that by entering into any franchise agreement hereunder, a franchisee shall not be deemed to have waived any right it may have to object to or challenge any amendment to this chapter made after the effective date of such franchise agreement on the grounds that such amendment abridges any contractual rights a franchisee may have in its franchise agreement or is otherwise unlawful.

B. Franchise/Certificate of Franchise Authority Required. No person may construct or operate a cable system without a certificate of franchise authority granted by the state pursuant to T.C.A. § 7-59-301 et seq. or a franchise agreement granted by the metropolitan government.

C. Council Action Required. All franchises, and all renewals, extensions and amendments thereof shall be granted only by ordinance. No such ordinance shall be adopted before the application therefor has been filed with the council through the metropolitan clerk and same shall have been referred by the council to the CATV special committee for its consideration.

1. No ordinance granting or revoking a franchise shall be passed by the council without a full public proceeding affording due process in which the franchisee's legal, character, financial, technical and other qualifications, and the adequacy and feasibility of its construction arrangements have been reviewed and approved either by the full council or a committee composed of members of the council only. The franchise shall include those provisions of the franchisee's application pursuant to Section 6.08.040 that are finally negotiated and accepted by Metropolitan Nashville and franchisee in writing. Nothing in the franchise shall be deemed to waive the requirements of the various codes and ordinances of Metropolitan Nashville regarding permits, fees to be paid, or manner of construction.

2. Franchises shall be evidenced by a contract adopted by the council, which contract shall be submitted to the mayor in the manner provided for by the Metropolitan Government Charter.

D. Length of Franchise. A franchise shall initially be granted for a period as set forth in a franchise agreement; provided, however, that the term of a franchise shall not exceed fifteen years. Notwithstanding the foregoing, a franchisee may apply for renewal or extension pursuant to Section 6.08.040 of this chapter.

E. Reserved.

F. Franchisee Subject to Other Laws, Police Power.

1. A franchisee shall at all times be subject to and shall comply with all applicable federal, state, and local laws. A franchisee shall at all times be subject to all lawful exercise of the police power of Metropolitan Nashville, including all rights Metropolitan Nashville may have under 47 U.S.C. Section 552.

2. No course of dealing between a franchisee and Metropolitan Nashville, or any delay on the part of Metropolitan Nashville in exercising any rights hereunder, shall operate as a waiver of any such rights of Metropolitan Nashville or acquiescence in the actions of a franchisee in contravention of rights except to the extent expressly waived by Metropolitan Nashville or expressly provided for in a franchise agreement.

3. Metropolitan Nashville shall have the maximum plenary authority to regulate cable systems, franchisees, and franchises as may now or hereafter be lawfully permissible; except where rights are expressly waived by a franchise agreement, they are reserved, whether expressly enumerated or not.

G. Modification of Franchise in Event of Conflict. Should the State of Tennessee, FCC rules or federal law require the franchisee to perform or refrain from performing any act, the performance or nonperformance of which is inconsistent with any of the provisions of this chapter or a franchisee's franchise agreement, the franchisee shall so notify the council and the council shall thereupon, if it determines that a material provision of this chapter or the franchise agreement is affected, have the right to modify any such provision herein to such reasonable extent as may be necessary to carry out the full intent and purpose of the franchise agreement and this chapter. Metropolitan Nashville may terminate the franchise in the event Metropolitan Nashville determines that substantial and

material compliance with the original proposed terms of the franchise agreement has been frustrated by such state or federal requirements.

H. Interpretation of Franchise Terms.

1. Reserved.

2. The provisions of this chapter and a franchise agreement will be liberally construed in favor of promoting the public interest.

3. A franchise agreement will be governed by and construed in accordance with the laws of the State of Tennessee and federal law.

I. Operation of a Cable System Without a Franchise/Certificate of Franchise Authority. Any person who occupies the public rights-of-way for the purpose of operating or constructing a cable system and who does not hold a valid franchise from the metropolitan government or a certificate of franchise authority from the state shall be subject to all provisions of this chapter. In its discretion the metropolitan government at any time may require such person to enter into a franchise agreement within thirty days of receipt of a written notice by the metropolitan government that a franchise agreement is required; require such person to remove its property and restore the area to a condition satisfactory to the metropolitan government within such time period; remove the property itself and restore the area to a satisfactory condition and charge the person the costs therefor; and/or take any other action it is entitled to take under applicable law, including filing for and seeking damages under trespass. In no event shall a franchise be created unless it is issued by action of the metropolitan government or the state and subject to a written franchise agreement or certificate of franchise authority.

J. Acts at Franchisee's Expense. Any act that a franchisee is or may be required to perform under this chapter, a franchise agreement, or applicable law shall be performed at the franchisee's expense, unless expressly provided to the contrary in this chapter, the franchise agreement, or applicable law.

K. Reserved.

L. Exclusive Contracts and Anticompetitive Acts Prohibited.

1. Except to the extent permitted by subsection (E)(6) of this section, no franchisee shall, as a condition of extending service, require any person to enter into an exclusive contract for the provision of cable service, or demand the exclusive right to serve a person or location.

2. No franchisee shall engage in acts that have the purpose or effect of unlawfully limiting competition for the provision of cable service or services similar to cable service in Metropolitan Nashville within the meaning of applicable federal or state law.

M. Reserved. (Ord. BL2013-396 §§ 2—4, 2013; Ord. 95-1368 § 2 (part), 1995)

6.08.040 Applications for grant, renewal, or modification of franchises.

A. Written Application.

1. A written application shall be filed with Metropolitan Nashville for (a) grant of an initial franchise; (b) renewal of a franchise under 47 U.S.C. Section 546(a)—(g); or (c) modification of a franchise agreement pursuant to this chapter or a franchise agreement. An applicant shall demonstrate in its application compliance with all requirements of this chapter and all applicable laws.

2. Any application for a franchise shall be made to the council through the metropolitan clerk and introduced in the council in the manner provided by the rules of the council. No grant, renewal or modification of a franchise shall be issued until the council has received the recommendation of the CATV special committee or the CATV special committee has failed to act within sixty days from the date the council has referred such application to such committee, unless a longer period is granted by the council.

3. Each such application shall be kept on file with the metropolitan clerk. Any intentional misrepresentation in such application shall be grounds for the rejection of the application. The application shall be a part of any franchise agreement subject to this chapter.

4. The mandatory referral to the metropolitan planning commission required by Section 11.505 of the Metropolitan Charter shall apply to each franchise application, but such referral to the planning commission may be made at the same time as any one or more franchise applications or bills are referred to the CATV special committee.

5. To be acceptable for filing, a signed original of the application shall be submitted together with twelve copies. The application must be accompanied by the required application filing fee as set forth in subsection F of this section, conform to any applicable request for proposals, and contain all required information. All applications shall include the names and addresses of persons authorized to act on behalf of the applicant with respect to the application.

6. All applications accepted for filing shall be made available by Metropolitan Nashville for public inspection.

B. Application for Grant of a Franchise, Other Than a Cable Act Renewal Franchise.

1. A person may apply for a franchise by submitting a request for issuance of a notice of sale ("NOS") and requesting an evaluation of its application pursuant to subsection (B)(4) of this section. Upon receipt of a

request for an NOS, Metropolitan Nashville shall, if necessary, commence a proceeding to identify the future cable-related needs and interests of the community and, upon completion of that proceeding, shall promptly issue an NOS and proposed franchise agreement, which shall be mailed to the person requesting its issuance and made available to any other interested party. The applicant shall respond within the time directed by Metropolitan Nashville, providing the information and material set forth in subsection D of this section. The procedures, instructions, and requirements set forth in the NOS shall be followed by each applicant as if set forth and required herein. Metropolitan Nashville or its designee may seek additional information from any applicant and establish deadlines for the submission of such information.

2. Notwithstanding the provisions of subsection (B)(1) of this section, a person may apply for an initial franchise by submitting an unsolicited application containing the information required in subsection D of this section and requesting an evaluation of that application pursuant to subsection (B)(3) of this section. Prior to evaluating that application, Metropolitan Nashville may conduct such investigations as are necessary to determine whether the application satisfies the standards set forth in subsection (B)(3) of this section and may seek additional applications.

3. In evaluating an application for a franchise, Metropolitan Nashville shall consider, among other things, the following factors:

a. The extent to which the applicant has substantially complied with the applicable law and the material terms of any existing cable franchise for Metropolitan Nashville;

b. Whether the quality of the applicant's service under any existing franchise in Metropolitan Nashville, including signal quality, level of service, response to customer complaints, billing practices, and the like, has been reasonable in light of the needs and interests of the communities served;

c. Whether the applicant has the financial, technical, and legal qualifications to provide cable service;

d. Whether the application satisfies any minimum requirements established by Metropolitan Nashville and is otherwise reasonable to meet the future cable-related needs and interests of the community, taking into account the cost of meeting such needs and interests;

e. Whether, to the extent not considered as part of subsection (B)(3)(d) of this section, the applicant will provide adequate public, educational, and governmental access channel capacity, facilities, or financial support;

f. Whether issuance of a franchise is warranted in the public interest considering the immediate and future effect on the public rights-of-way and private property that would be used by the cable system, including the extent to which installation or maintenance as planned would require replacement of property or involve disruption of property, public services, or use of the public rights-of-way; the effect of granting a franchise on the ability of all cable systems in Metropolitan Nashville to meet the cable-related needs and interests of the community; and the comparative superiority or inferiority of competing applications;

g. Whether the applicant or an affiliate of the applicant owns or controls any other cable system in Metropolitan Nashville, or whether grant of the application may eliminate or reduce competition in the delivery of cable service in Metropolitan Nashville.

4. If Metropolitan Nashville finds that it is in the public interest to issue a franchise considering the factors set forth above, and subject to the applicant's entry into an appropriate franchise agreement, it shall issue a franchise. If Metropolitan Nashville denies a franchise, it will issue a written decision explaining why the franchise was denied. Prior to deciding whether or not to issue a franchise, Metropolitan Nashville shall hold one or more public hearings or implement other procedures under which comments from the public on an application may be received. Metropolitan Nashville also may grant or deny a request for a franchise based on its review of an application without further proceedings and may reject any application that is incomplete or fails to respond to an NOS. This chapter is not intended and shall not be interpreted to grant any applicant or existing franchisee standing to challenge the issuance of a franchise to another.

C. Application for Grant of a Cable Act Renewal Franchise. Applications for renewal under the Cable Act shall be received and reviewed in a manner consistent with Section 626 of the Cable Act, 47 U.S.C. Section 546. If neither a franchisee nor Metropolitan Nashville activates in a timely manner or can activate the renewal process set forth in 47 U.S.C. Section 546(a)—(g) (including, for example, if the provisions are repealed), and except as to applications submitted pursuant to 47 U.S.C. Section 546(h), the provisions of this Section 6.08.040 shall apply and a renewal request shall be evaluated using the same criteria as any other request for a franchise. The following requirements shall apply to renewal requests properly submitted pursuant to the Cable Act:

1. If the provisions of 47 U.S.C. Section 546(a)—(g) are properly invoked, Metropolitan Nashville shall issue a request for renewal proposal ("RFRP") after conducting a proceeding to review the applicant's past performance and to identify future cable-related community needs and interests. The department of information systems shall

establish deadlines and procedures for responding to the RFRP, may seek additional information from the applicant, and shall establish deadlines for the submission of that additional information. Following receipt of the application responding to that RFRP (and such additional information as may be provided in response to requests), Metropolitan Nashville will determine that the franchise should be renewed, or make a preliminary assessment that the franchise should not be renewed. This determination shall be in accordance with the time limits established by the Cable Act. The preliminary determination shall be made by resolution. If Metropolitan Nashville determines that the franchise should not be renewed, and the applicant that submitted the renewal application notifies Metropolitan Nashville, either in its proposal in response to the RFRP or within ten working days of the preliminary assessment, that it wishes to pursue any rights to an administrative proceeding it has under the Cable Act, then the CATV special committee shall commence an administrative proceeding after providing prompt public notice thereof, in accordance with the Cable Act. If Metropolitan Nashville decides preliminarily to grant renewal, it shall prepare a final franchise agreement that incorporates, as appropriate, the commitments made by the applicant in the renewal application. If the applicant accepts the franchise agreement, and the final agreement is ratified by Metropolitan Nashville, the franchise shall be renewed. If the franchise agreement is not so accepted and ratified within the time limits established by 47 U.S.C. Section 546(c)(1), renewal shall be deemed preliminarily denied, and an administrative proceeding commenced if the applicant that submitted the renewal application requests it within ten days of the expiration of the time limit established by 47 U.S.C. Section 546(c)(1).

2. If an administrative hearing is commenced pursuant to 47 U.S.C. Section 546(c), the applicant's renewal application shall be evaluated considering such matters as may be considered consistent with federal law. The following procedures shall apply:

a. The CATV special committee shall serve as the administrative hearing body, and will evaluate the proposal. The director and staff of the department of information systems, or their designees (collectively "staff"), shall serve as the representative of the metropolitan government.

b. The CATV special committee shall establish a schedule for proceeding which allows for documentary discovery and interrogatory responses, production of evidence, and cross-examination of witnesses. Depositions shall not be permitted unless the party requesting the deposition shows that documentary discovery and interrogatory responses will not provide it an adequate opportunity to require the production of evidence necessary to present its case. The CATV special committee shall have the authority to require the production of evidence as the interests of justice may require, including to require the production of evidence by the applicant that submitted the renewal application and any entity that owns or controls or is owned or controlled by, or under common control with, such applicant directly or indirectly. The CATV special committee may issue protective orders, but shall not prohibit discovery on the ground that evidence sought is proprietary or involves business secrets. Any order may be enforced by a court of competent jurisdiction or by imposing appropriate sanctions in the administrative hearing.

c. The CATV special committee may conduct a prehearing conference and establish appropriate prehearing orders. Intervention by nonparties is not authorized except to the extent required by the Cable Act.

d. The CATV special committee shall require the staff and the applicant to submit prepared testimony prior to the hearing. Unless the parties agree otherwise, the applicant shall present evidence first, and the staff shall present evidence second.

e. Any reports or the transcript or summary of any proceedings conducted pursuant to 47 U.S.C. Section 546(a) shall for purposes of the administrative hearing be regarded no differently than any other evidence. The staff and the applicant must be afforded full procedural protection regarding evidence related to these proceedings, including the right to refute any evidence introduced in these proceedings or sought to be introduced by the other party. Both shall have the opportunity to submit additional evidence related to issues raised in the proceeding conducted pursuant to 47 U.S.C. Section 546(a).

f. Following completion of any hearing, the CATV special committee shall require the parties to submit proposed findings of fact with respect to the matters that Metropolitan Nashville is entitled to consider in determining whether renewal ought to be granted. Based on the record of the hearing, the CATV special committee shall then prepare written findings with respect to those matters, and submit those findings to the council and to the parties.

g. The parties shall have thirty days from the date the findings are submitted to the council to file exceptions to those findings. The council shall thereafter issue a written decision granting or denying the application for renewal, consistent with the requirements of the Cable Act and based on the record of such proceeding. A copy of the final decision of the council shall be provided to the applicant.

h. The proceeding shall be conducted with due speed.

i. In conducting the proceedings, and except as inconsistent with the foregoing, the CATV special committee will follow applicable state administrative procedure laws, or the successor statutes thereto. The CATV special committee may request that the council adopt additional procedures and requirements as necessary in the interest of justice.

j. This section does not prohibit any franchisee from submitting an informal renewal application pursuant to 47 U.S.C. Section 546(h), which application may be granted or denied in accordance with the provisions of 47 U.S.C. Section 546(h). If such an informal renewal application is granted, then the steps specified in subsections (C)(1) and (C)(2)(a—l) of this section need not be taken, notwithstanding the provisions of those subsections.

k. The provisions of this chapter shall be read and applied so that they are consistent with Section 626 of the Cable Act, 47 U.S.C. Section 546.

D. Contents of Applications. An NOS for the grant of a franchise, including an RFRP for a renewal franchise under 47 U.S.C. Section 546(c), shall require, and any application submitted (other than an application submitted pursuant to 47 U.S.C. Section 546(h)) shall contain, at a minimum, the following information:

1. Name and address of the applicant and identification of the ownership and control of the applicant, including: The names and addresses of the ten largest holders of an ownership interest in the applicant and affiliates of the applicant, and all persons with five percent or more ownership interest in the applicant and its affiliates; the persons who control the applicant and its affiliates; all officers and directors of the applicant and its affiliates; and any other business affiliation and cable system ownership interest of each named person;

2. A demonstration of the applicant's technical ability to construct and/or operate the proposed cable system, including identification of key personnel;

3. A demonstration of the applicant's legal qualifications to construct and/or operate the proposed cable system, including but not limited to a demonstration that the applicant meets the following criteria:

a. The applicant must not have submitted an application for an initial or renewal franchise to Metropolitan Nashville, which was denied on the ground that the applicant failed to propose a system meeting the cable-related needs and interests of the community, or as to which any challenges to such franchising decision were finally resolved adversely to the applicant, within three years preceding the submission of the application.

b. The applicant must not have had any cable television franchise validly revoked by any franchising authority within three years preceding the submission of the application.

c. The applicant must have the necessary authority under Tennessee law to operate a cable system.

d. The applicant shall not be issued a franchise if it may not hold the franchise as a matter of federal law. An applicant must have, or show that it is qualified to obtain, any necessary federal licenses, franchises, authorizations, approvals or waivers required to own and/or operate the system proposed.

e. The applicant shall not be issued a franchise if, at any time during the ten years preceding the submission of the application, the applicant or any of its officers or directors were convicted of any act or omission of such character that the applicant cannot be relied upon to deal truthfully with Metropolitan Nashville and the subscribers of the cable system, or to substantially comply with its lawful obligations under applicable law, including obligations under consumer protection laws and laws prohibiting anticompetitive acts, fraud, racketeering, or other similar conduct.

f. The applicant shall not be issued a franchise if it files materially misleading information in its application or intentionally withholds information that the applicant lawfully is required to provide.

g. The applicant shall not be issued a franchise if an elected official of Metropolitan Nashville holds a controlling interest in the applicant or an affiliate of the applicant.

Notwithstanding the foregoing, Metropolitan Nashville shall provide an opportunity to an applicant to show that it would be inappropriate to deny it a franchise under subsections (D)(3)(a), (b) or (e) of this section, by virtue of the particular circumstances surrounding the matter and the steps taken by the applicant to cure all harms flowing therefrom and prevent their recurrence, the lack of involvement of the applicant's principals, or the remoteness of the matter from the operation of cable television systems;

4. A statement prepared by a certified public accountant regarding the applicant's financial ability to complete the construction and operation of the cable system proposed;

5. A description of the applicant's prior experience in cable system ownership, construction, and operation, and identification of communities in which the applicant or any of its principals have, or have had, a cable franchise or franchise or any interest therein, provided that an applicant that holds a franchise for Metropolitan Nashville and is seeking renewal of that franchise need only provide this information for other communities

where its franchise was scheduled to expire in the two calendar years prior to and after its application was submitted;

6. Identification of the area of Metropolitan Nashville to be served by the proposed cable system, including a description of the proposed franchise area's boundaries;

7. A detailed description of the physical facilities proposed, including channel capacity, technical design, performance characteristics, headend, and access facilities;

8. Where applicable, a description of the construction of the proposed system, including an estimate of plant mileage and its location; the proposed construction schedule; a description, where appropriate, of how services will be converted from existing facilities to new facilities; and information on the availability of space in conduits including, where appropriate, an estimate of the cost of any necessary rearrangement of existing facilities;

9. The proposed rate structure, including projected charges for each service tier, installation, converters, and all other proposed equipment or services;

10. A demonstration of how the applicant will reasonably meet the future cable-related needs and interests of the community, including descriptions of how the applicant will meet the needs described in any recent community needs assessment conducted by or for Metropolitan Nashville, and how the applicant will provide adequate public, educational, and governmental access channel capacity, facilities, or financial support to meet the community's needs and interests;

11. Pro forma financial projections for the proposed franchise term, including a statement of projected income, and a schedule of planned capital additions, with all significant assumptions explained in notes or supporting schedules;

12. If the applicant proposes to provide cable service to an area already served by an existing cable franchisee, the identification of the area where the overbuild would occur, and a detailed explanation of the ability of the public rights-of-way and other property that would be used by the applicant to accommodate an additional system;

13. Any other information as may be reasonably necessary to demonstrate compliance with the requirements of this chapter;

14. Information that Metropolitan Nashville may request of the applicant that is relevant to Metropolitan Nashville's consideration of the application;

15. An affidavit or declaration of the applicant or authorized officer certifying the truth and accuracy of the information in the application, acknowledging the enforceability of application commitments, and certifying that the application meets all federal and state law requirements.

E. Application for Modification of a Franchise. An application for modification of a franchise agreement shall include, at minimum, the following information:

1. The specific modification requested;

2. The justification for the requested modification, including the impact of the requested modification on subscribers and others, and the financial impact on the applicant if the modification is approved or disapproved, demonstrated through, inter alia, submission of financial pro formas;

3. A statement whether the modification is sought pursuant to Section 625 of the Cable Act, 47 U.S.C. Section 545, and, if so, a demonstration that the requested modification meets the standards set forth in 47 U.S.C. Section 545;

4. Any other information that the applicant believes is necessary for Metropolitan Nashville to make an informed determination on the application for modification; and

5. An affidavit or declaration of the applicant or authorized officer certifying the truth and accuracy of the information in the application, and certifying that the application is consistent with all federal and state law requirements.

F. Filing Fees. To be acceptable for filing, an application submitted after the effective date of the ordinance codified in this chapter shall be accompanied by a filing fee in the following amount to cover costs incidental to the awarding or enforcement of the franchise, as appropriate:

1. For an initial franchise:

a. A request for issuance of an NOS: $1,000.00,

b. A response to an NOS or an unsolicited application: $5,000.00;

2. For renewal of a franchise: $10,000.00;

3. For modification of a franchise agreement: $5,000.00;

4. For approval of a transfer: $5,000.00.

In addition, Metropolitan Nashville may require the franchisee, or, where applicable, a transferor or transferee, to reimburse Metropolitan Nashville for its reasonable out-of-pocket expenses in considering the application, including consultants' fees. Payments hereunder are not a franchise fee and fall within one or more of the exceptions in 47 U.S.C. Section 542(g)(2), and no such payments may be passed through to subscribers in any form.

G. Public Hearings. An applicant shall be notified of any public hearings held in connection with the evaluation of its application and shall be given an opportunity

to be heard. In addition, prior to the issuance of a franchise, Metropolitan Nashville shall provide for the holding of a public hearing within the proposed franchise area, following reasonable notice to the public, at which every applicant and its applications shall be examined and the public and all interested parties afforded a reasonable opportunity to be heard. Reasonable notice to the public shall include causing notice of the time and place of such hearing to be published in a newspaper of general circulation in the proposed franchise area once a week for two consecutive weeks. The first publication shall be not less than fourteen days before the day of the hearing. (Ord. 95-1368 § 2 (part), 1995)

6.08.050 Reserved.

Editor's note—Ord. BL2013-396, § 5, adopted April 16, 2013, repealed § 6.08.050, which pertained to construction provisions and derived from Ord. 95-1368 § 2 (part), 1995.

6.08.060 System facilities, equipment, and services.

A. Compliance with Franchise Agreement. In addition to satisfying such requirements as may be established through the application process and incorporated in its franchise agreement, every franchisee shall comply with the conditions set forth in this Section 6.08.060, except as prohibited by federal law.

B. Reserved.

C. Reserved.

D. Leased Access Requirement. A franchisee shall provide leased access channels as required by federal law.

E. Reserved.

F. Proof of Performance Tests.

1. At least once every six months, unless otherwise limited by a franchise agreement or FCC rules, a franchisee shall perform proof of performance tests at the test points designated pursuant to Section 6.08.050(F)(1)(c) and at other points where system user complaints indicate tests are warranted. Franchisee shall also perform such other tests as may be specified in a franchise agreement, designed to demonstrate compliance with this section, the franchise agreement, and FCC requirements. The franchisee shall provide Metropolitan Nashville ten days' advance written notice when a proof-of-performance or other required test is scheduled so that Metropolitan Nashville may have an observer present. Metropolitan Nashville shall have the right to inspect the cable system during and after its construction to ensure compliance with this section, a franchise agreement, and applicable provisions of local, state and federal law, and based on the results of such inspection, may require the franchisee to perform additional tests based on Metropolitan Nashville's investigation of cable system performance or on subscriber complaints.

2. Reserved.

G. Reserved.

H. Reserved.

I. System Design Review Process. Upon request and reasonable advance notice, a franchisee shall provide a detailed system design and construction plan (where applicable), available for review by Metropolitan Nashville at the local office of the franchisee, which shall include at least the following elements:

1. Design type, trunk and feeder design, and number and location of hubs or nodes;

2. Distribution system-cable, fiber, and equipment to be used;

3. Plans for standby power at headend;

4. Longest amplifier cascade in system (number of amplifiers, number of miles, type of cable/fiber);

5. Design maps and tree trunk maps for the system. The system design will be shown on maps of industry standard scale using standard symbology, and shall depict all electronic and physical features of the cable plant. Metropolitan Nashville may take any appropriate action it is entitled to take under a franchise agreement, this chapter, or other applicable law if it believes the design plan fails to satisfy or is likely to fail to satisfy the franchisee's obligations. Metropolitan Nashville's review does not excuse any nonperformance under a franchise agreement, this chapter or other applicable law.

J. Reserved.

K. Public, Educational and Governmental Access Channels. A franchisee shall provide channels and facilities for public, educational and/or governmental use as provided in its franchise agreement. (Ord. BL2013-396 § 6, 2013; Ord. 95-1368 § 2 (part), 1995)

6.08.070 Operation and reporting provisions.

A. Reserved.

B. Reserved.

C. Reports.

1. Annual Report. No later than ninety days after the end of its fiscal year, a franchisee shall submit a written report to the CATV special committee, in a form directed by the CATV special committee, which shall include the following information pertaining to the franchisee and, as applicable, the operations of the franchisee and any of its affiliates in the franchise area:

a. A summary of the previous year's activities in development of the cable television system, including but not limited to descriptions of services begun or dropped, the number of subscribers gained or lost for each category of service, the number of pay units sold, the

amount collected annually from other users of the system and the character and extent of the services rendered to such users,

b. A summary of complaints, identifying both the number and nature of the complaints received and an explanation of their dispositions,

c. An annual statement of gross revenues and franchise fee as defined elsewhere in this chapter in the form illustrated herein prepared by its chief financial officer and certified by its chief financial officer and chief operating officer to be in accordance with this section and to be true, correct and complete.

The statement of gross revenues and franchise fee must be examined by an Independent certified public accountant (CPA) approved by the finance director of the Metropolitan Government of Nashville and Davidson County. The CPA will prepare a report giving an opinion on the Statement of gross revenues and franchise fee. The CPA's opinion must be generally in the form illustrated below and specifically state that the statement reflects gross revenues and franchise fee calculated in conformity with this section:

(i) Statement of Gross Revenues and Franchise Fee For the Fiscal Year Ended _____

In accordance with Ordinance No. _____ dated _____ (hereinafter Franchise Agreement) I/we have prepared the following Statement of Gross Revenues and Franchise Fee for the fiscal year ended _____.

_____
Gross Revenue $$$$$

Franchise Fee Rate %

Franchise Fee Due $$$$$

I certify that the information contained in this Statement of Gross Revenues and Franchise Fee is in accordance with the Franchise Agreement and is true, correct and complete to the best of my knowledge.

_____

_____
Chief Financial Officer Chief Operating Officer

Date: _____

(ii) INDEPENDENT ACCOUNTANT'S REPORT

We have examined the accompanying (Franchisee) Cable Statement of Gross Revenues and Franchise Fee for the year beginning _____ and ending _____ which will be provided to the Director of Finance of The Metropolitan Government of Nashville and Davidson County, Tennessee. (Franchisee) management is responsible for the Statement of Gross Revenue and Franchise Fee. Our responsibility is to express an opinion based on our examination.

Our examination was conducted in accordance with attestation standards established by the American Institute of Certified Public Accountants and, accordingly, included examining, on a test basis, evidence supporting the (Franchisee) Statement of Gross Revenues and Franchise Fee and performing such other procedures, as we considered necessary in the circumstances. We believe that our examination provides a reasonable basis for our opinion.

In our opinion, the Statement of Gross Receipts and Franchisee Fee for the year ending _____ referred to above, presents, in all material respects, the calculation of the Gross Revenues and Franchise Fee for the year in conformity with Section 6.08.070 of the Metropolitan Code of Laws.

d. A current annual statement of all capital expenditures, including the cost of construction and of equipment,

e. A statement of construction plans for the next two years,

f. A statement of the total miles of plant in service and the miles of plant construction (if any) during the preceding year,

g. A report showing the number of service calls received by type during the prior year, and the percentage of service calls compared to the subscriber base by type of complaint,

h. A report showing the number of outages and service degradations for the prior year, and identifying separately each planned outage, the time it occurred, its duration, and the estimated area and number of subscribers affected; each unplanned outage or service degradation, the time it occurred, its estimated duration and the estimated area and the number of subscribers affected; and the total hours of outages and service degradations as a percentage of total hours of cable system operation,

i. An ownership report, indicating all persons who at any time during the preceding year did control or benefit from an interest in the franchise of five percent or more,

j. An annual list of officers and members of the board of directors of the franchisee and any affiliates,

k. An organizational chart showing all corporations or partnerships with more than a five percent interest ownership in the franchisee, and the nature of that ownership interest (limited partner, general partner, pre-

ferred shareholder, etc.); and showing the same information for each corporation or partnership that holds such an interest in the corporations or partnerships so identified and so on until the ultimate corporate and partnership interests are identified,

l. An annual report of each entity identified in subsection k of this section which issues an annual report, and

m. Such other relevant information as the department of information services or the CATV special committee may direct;

2. Reserved;

3. Special Reports. Franchisees shall deliver the following special reports:

a. Any notice of deficiency, forfeiture, or other document issued by any state or federal agency instituting any investigation or civil or criminal proceeding regarding the cable system, the franchisee, or any affiliate of the franchisee, to the extent the same may affect or bear on operations in Metropolitan Nashville. By way of illustration and not limitation, a notice that an affiliate that has a management contract for the cable system was not in compliance with FCC EEO requirements would be deemed to affect or bear on operations in Metropolitan Nashville. This material shall be submitted to Metropolitan Nashville at the time it is filed or within five days of the date it is received,

b. Any request for protection under bankruptcy laws, or any judgment related to a declaration of bankruptcy by the franchisee or by any partnership or corporation that owns or controls the franchisee directly or indirectly. This material shall be submitted to Metropolitan Nashville at the time it is filed or within five days of the date it is received,

c. Technical tests required by Metropolitan Nashville as specified in this chapter and the franchise agreement shall be submitted to Metropolitan Nashville promptly upon completion of such tests;

4. Reserved.

D. Records Required.

1. A franchisee shall at all times maintain:

a. Records of all service requests and complaints (other than those relating to programming content) received for a period of one year after receipt. The term "complaints" as used herein and throughout this chapter refers to complaints about any aspect of the cable system or franchisee's operations, including, without limitation, complaints about employee courtesy. Complaints recorded may not be limited to complaints requiring an employee service call,

b. A full and complete set of plans, records, and "as built" maps showing the exact location of all system equipment installed or in use in Metropolitan Nashville, exclusive of subscriber service drops,

c. A comprehensive record of all of franchisee's personnel transactions, and its utilization of contractors, subcontractors, vendors, and suppliers by race and sex for the previous three years,

d. Records of outages, indicating date, duration, area, and the estimated number of subscribers affected, type of outage, and cause for the previous three years,

e. Records of service calls for repair and maintenance indicating the date and time service was required, the date of acknowledgement and date and time service was scheduled (if it was scheduled), and the date and time service was provided, and (if different) the date and time the problem was solved for the previous three years,

f. Records of installation/reconnection and requests for service extension, indicating date of request, date of acknowledgment, and the date and time service was extended for the previous three years,

g. A public file showing its plan and timetable for construction of the cable system;

2. Reserved.

E. Performance Evaluation.

1. The CATV special committee may, at its discretion, hold periodic performance evaluation sessions. All such evaluation sessions shall be open to the public, and announced in a newspaper of general circulation;

2. Topics that may be discussed at any evaluation session may include, but are not limited to, system performance and construction, franchisee compliance with this chapter and a franchise agreement, customer service and complaint response, subscriber privacy, services provided, programming offered, service rate structures, franchise fees, penalties, free or discounted services, applications of new technologies, judicial and FCC filings, and line extensions;

3. During the review and evaluation by the CATV special committee, a franchisee shall fully cooperate with the CATV special committee and shall provide such information and documents as the CATV special committee may need to reasonably perform its review.

F. Voluminous Materials. If any books, records, maps or plans, or other requested documents are too voluminous, or for security reasons cannot be copied and moved, then a franchisee may request that the inspection take place at a location other than its local office, provided that (1) the franchisee must make necessary arrangements for copying documents selected by Metropolitan Nashville after review; and (2) the franchisee must pay all travel and additional copying expenses incurred by Metropolitan Nashville in inspect-

ing those documents or having those documents inspected by its designee. Any such expenses paid by the franchisee are requirements or charges incidental to the enforcing of the franchise within the meaning of 47 U.S.C. Section 542(g)(2)(D).

G. Retention of Records—Relation to Privacy Rights. Each franchisee shall take all steps required, if any, to ensure that it is able to provide Metropolitan Nashville all information which must be provided or may be requested under this chapter or a franchise agreement, including by providing appropriate subscriber privacy notices. Nothing in this section shall be read to require a franchisee to violate 47 U.S.C. Section 551. Each franchisee shall be responsible for redacting any data that federal law prevents it from providing to Metropolitan Nashville. Except as otherwise provided herein, records shall be kept for at least five years. (Ord. BL2013-396 § 7, 2013; Ord. BL2004-157 § 1, 2004; Ord. 95-1368 § 2 (part), 1995)

6.08.080 Regulatory structure.

A. CATV Special Committee.

1. There is established by this chapter a CATV special committee consisting of seven members. Four members shall be appointed by the metropolitan mayor and confirmed by a majority vote of the whole membership of the metropolitan council. Three members shall be elected by a majority vote of the whole membership of the metropolitan council. Of the members elected by the council, one shall be a representative of a union representing workers in telecommunications industry. The members of the CATV special committee shall serve a term of three years.

2. No member of the CATV special committee shall have an interest in any company or affiliate engaged in cable television or in application for a franchise.

3. The CATV special committee shall have the right to call upon, with expectation of reasonable cooperation, any agency of the metropolitan government to assist it in its findings of fact and recommendations to council as required by this chapter.

4. Except to the extent otherwise specifically provided in this chapter, the CATV special committee shall have the power and authority to review and evaluate any matter relating to the operation of any franchise, and the performance of any franchisee, that may be granted to Metropolitan Nashville under provisions of this chapter as it deems proper within its power under the Charter of The Metropolitan Government of Nashville and Davidson County and the general laws of Tennessee; provided, however, that the council shall have exclusive and final authority to grant and revoke franchises.

5. In addition to its other duties, the CATV special committee shall also be responsible for reviewing and regulating subscriber rates for basic service, in accordance with Section 6.08.100 of this chapter, and any rate regulations adopted by the committee or Metropolitan Nashville.

B. Hearings.

1. The hearing panel for any hearing required or permitted under the provisions of this chapter shall be the CATV special committee. The CATV special committee shall first promulgate its organizational structure and the rules applicable to the conduct of such hearing, and they shall be filed with the metropolitan clerk. When a determination is made respecting any matter which may be the subject of a hearing, such determination shall be communicated by the CATV special committee in writing in detail to the council at the earliest possible time; copies thereof shall be furnished to the franchisee. At such hearings, the franchisee shall be given full opportunity to make a presentation and to be heard through witnesses and counsel and any other person representing the public shall also be heard. Metropolitan Nashville, through its staff (as defined in Section 6.08.040(C)(2)(a) hereof), shall also be permitted to make a presentation. The recommendations, transcripts and presentation materials shall be transmitted to the council as soon as possible but within any specific time limitations established herein.

2. A determination for a hearing may be made and hearing or hearings undertaken on any matter concerning this chapter or franchise grants made under the chapter by the chairman of the CATV special committee, by any three members of said CATV special committee, by a resolution of the council, or by franchisee.

3. Any such call for hearings must be properly made to the chairman of the CATV special committee and a copy sent to the metropolitan clerk. Both these request documents must be made with registered letter by registry receipt and the hearing must convene within ten days after receipt of the request by the metropolitan clerk unless the time is modified by the chairman of the special committee or otherwise specified in this chapter.

C. Department of Information Systems.

1. Intent. It is the intent of Metropolitan Nashville to provide for the day-to-day administration and enforcement of the provisions of this franchise by delegating this responsibility to the department of information systems and its division, the office of telecommunications, as provided in Article 2 of the Metro Code.

2. Appeals. Should the franchisee become dissatisfied with any material decision or ruling of the department of information services pertaining to cable communication matters, the franchisee may bring the matter to CATV special committee. The special committee may accept, reject, or modify the decision of the department of information services. If the franchisee is dissatisfied with the decision of the special committee relating to any matter other than the grant or denial of a franchise, franchise renewal application or franchise transfer application, the special committee's decision shall be final, and the franchisee may pursue such other remedies as are available, including the bringing of action in any court of competent jurisdiction. If the franchisee is dissatisfied with the decision of the special committee relating to the grant or denial of a franchise, franchise renewal or franchise transfer application, the franchisee may appeal the matter to the council, which may accept, reject or modify the decision of the special committee. If the franchisee is dissatisfied with the results of such appeal, the franchisee may pursue such other remedies as are available, including the bringing of action in any court of competent jurisdiction.

D. Auditing—Finance Director Duties. The director of finance or his duly authorized agent shall be responsible for auditing of the books, records and accounts of the franchisee for the purpose of determining gross revenues and also for the purpose of ascertaining franchisee's compliance with this chapter or its franchise agreement, and for ascertaining franchisee's financial operations relating to fees charged for subscriber's service whenever such matters are presented to the special committee or the council for consideration or review.

E. Reserved.

F. Educational Access Corporation.

1. It is the intent of metropolitan government to ensure that the educational access channel(s) are governed by an independent, nonprofit corporation, termed the "Metropolitan Educational Access Corporation" (MEAC), such that these channels may be free of censorship, partisan politics and available for all forms of public educational programming for persons of all ages including instructional programming.

2. The incorporators of the MEAC shall consist of seven people, each of whom shall be appointed by the metropolitan county mayor and confirmed by the metropolitan county council. No agent, employee or representative of a franchisee, nor any officer or employee of the metropolitan government shall be qualified to serve as an incorporator of the MEAC. In no event shall membership of the MEAC be limited to subscribers of cable television.

3. Within sixty days after appointment and confirmation, the incorporators of the MEAC shall prepare and submit to the metropolitan county council for approval by resolution on the advice of the CATV special committee a proposed charter for the MEAC as a not-for-profit corporation under the general corporation laws of the State of Tennessee. The charter for the MEAC shall be structured so that it will meet the appropriate criteria for a nonprofit organization under the federal Internal Revenue Code and rules and shall include, but not be limited to, the following:

a. That the incorporators of the MEAC shall serve as the first board of directors of the MEAC from and after the date of incorporation of the MEAC and for a period of one year thereafter or until their successors have been duly appointed and confirmed;

b. That no later than six months after the date of incorporation of the MEAC, the board of directors of the MEAC shall be composed of seven qualified persons, each of whom shall serve for a term of three years or until their successors have been duly appointed and confirmed. The members of the board of directors of the MEAC shall be appointed by the metropolitan county mayor and confirmed by the council. Not more than two of the members shall be residents of the same metropolitan councilmanic district. No agent, employee or representative of a franchisee, nor any officer or employee of the metropolitan government shall be qualified to serve as a member of the board of directors of the MEAC. The terms of the initial members of the board of directors shall be staggered, with three members being initially appointed for a one year term, two members being initially appointed for a two year term and two members being initially appointed for a three year term. Vacancies occurring during the term of any member shall be filled by the same method as the appointment of the member in whose position the vacancy occurs;

c. That the functions of the MEAC shall include, but not be limited to, the following:

i. Responsibility for program production for and management of the educational access channel(s) on all cable systems and the day-to-day operation of the educational access channel(s);

ii. To devise, establish and administer all rules, regulations and procedures pertaining to the use and schedule of the educational access channel(s);

iii. To hire and supervise staff of the MEAC;

iv. To make all purchases of materials and equipment that may be required;

v. To develop additional sources of funding, such as foundation or federal or state grants, to further educational programming.

vi. To develop and promote the use of such educational access channel(s) by all schools, colleges, universities and other organization with educational missions within the franchise area; and

vii. To perform such other functions relevant to the educational access channel(s) as may be appropriate.

4. After the metropolitan county council approves the proposed charter of the MEAC, the proposed charter shall be filed with the Secretary of State of the State of Tennessee. After same has been issued by the Secretary of State, it shall be recorded in the office of the registrar of Davidson County. The director of the department of metropolitan finance shall advance the necessary filing and recording fees.

5. The MEAC shall allow the director of finance or his duly authorized agent full and complete access to any of its books, records, accounts, financial statements and other like material for the purpose of auditing in such manner as he may deem appropriate. The MEAC shall annually obtain an audit of its financial statements by a qualified and independent accounting firm approved by the director of finance.

G. Nashville Education, Community, and Arts Television Corporation.

1. The name of the Metropolitan Educational Access Corporation addressed in Section 6.08.080(F) shall be changed to Nashville Education, Community, and Arts Television Corporation.

2. The Metropolitan Educational Access Corporation is directed to amend and restate its charter to reflect the change of its name to Nashville Education, Community, and Arts Television Corporation and incorporate the provisions of this section, on or before April 6, 2010.

3. It is the intent of the metropolitan government to ensure that the public and educational access channels are governed by an independent, nonprofit corporation, termed the "Nashville Education, Community, and Arts Television Corporation" ("NECAT"), such that these channels may be free of censorship, partisan politics, and available for all forms of public expression, community information, and educational programming for persons of all ages.

4. Within one hundred and twenty days of the effective date of this section, NECAT shall prepare and submit to the metropolitan county council for approval by resolution on the advice of the CATV special committee, a proposed amended and restated charter for the NECAT as a not-for-profit corporation under the general corporation laws of the State of Tennessee. The amended and restated charter for the NECAT shall be structured so that it will meet the appropriate criteria for a nonprofit organization under the federal Internal Revenue Code and rules and shall include, but not be limited to, the following:

a. That the voting members of the board of directors of the NECAT shall be increased from seven to eleven qualified persons, each of whom shall serve for a term of three years or until their successors have been duly appointed and confirmed.

i. The four current directors of the Metropolitan Educational Access Corporation whose terms do not expire on February 5, 2010, shall continue to serve as directors of NECAT, which they shall continue to do until the expiration of their terms, after which their successors shall be appointed for terms of three years. The three members of the Metropolitan Educational Access Corporation (MEAC) Board whose terms expire on February 5, 2010, shall not continue to serve as board members of NECAT, although prior to the effective date of the herein-referenced Charter Amendment they may continue to hold over as MEAC Board members past the expiration of their terms on February 5, 2010, to the extent otherwise permitted by the Charter of the Metropolitan Government.

ii. The initial terms of two of the seven newly appointed additional voting members of the board of directors authorized by this section shall expire on February 5, 2011, after which their successors shall be appointed for terms of three years.

iii. The initial terms of two of the seven newly appointed additional voting members shall expire on February 5, 2012, after which their successors shall be appointed for terms of three years.

iv. The initial terms of the remaining three of the seven newly appointed additional voting members shall expire on February 5, 2013, after which their successors shall be appointed for terms of three years.

v. The voting members of the board of directors of NECAT shall be appointed by the metropolitan county mayor and confirmed by the council. Two voting members of the board shall be community members who have production experience involving use of the studio used by NECAT.

vi. No agent, employee or representative of a franchisee, nor any officer or employee of the metropolitan government shall be qualified to serve as a voting member of the board of directors of NECAT. In addition to the eleven voting members, the mayor shall designate one employee of the metropolitan government to serve as a nonvoting ex officio member of the board of directors of NECAT.

vii. Any vacancy occurring during the term of a member shall be filled for the unexpired term in the same manner as the original appointment.

b. That the functions of NECAT shall include, but not be limited to, the following:

i. To devise, establish and administer all rules, regulations and procedures pertaining to the use and schedule of the public and educational access channels;

ii. To hire and supervise staff of NECAT;

iii. To develop additional sources of funding from public and private sources, such as foundation or federal or state grants, to further public and educational programming.

iv. To develop and promote the use of such public and educational access channels by citizens and all schools, colleges, universities and other organizations with educational missions within the franchise area;

v. The board for NECAT has the responsibility for defining the mission respectively for education, community and arts television channels. The board will be committed to developing programming guidelines that are compliant with applicable law, including the FCC regulations. The board shall establish separate committees of the board for each of the channels (education, community access, and arts). Committee membership may include interested and qualified volunteers in addition to board members to screen and schedule programming content; and

vi. To perform such other functions relevant to the public and educational access channels as may be appropriate.

c. That the members of NECAT board shall be required to comply with the ethics provisions of Chapter 2.222 of the Metropolitan Code of Laws and Mayor Karl F. Dean Executive Orders Nos. 006 and 007, and any subsequent executive orders of the mayor of the metropolitan government on ethics.

5. After the metropolitan county council approves the proposed amended and restated charter of NECAT, the amended and restated charter shall be filed with the Secretary of State, State of Tennessee. After same has been issued by the Secretary of State, it shall be recorded in the office of the registrar of Davidson County. The director of the department of metropolitan finance shall advance the necessary filing and recording fees.

6. NECAT shall allow the director of the department of metropolitan finance or his duly authorized agent full and complete access to any of its books, records, accounts, financial statements, and other like material for the purpose of auditing in such manner as he may deem appropriate. NECAT shall annually obtain an audit of its financial statements by a qualified and independent accounting firm approved by the director of finance.

7. In no event shall NECAT have any authority or control of government access television, which is managed and operated by the metropolitan department of information services.

8. Public and educational access production facilities and equipment owned or leased by the metropolitan government shall be managed and operated by the metropolitan department of information technology services. Nothing herein shall be construed to give the department of information technology services any control over the content of public or educational access programming.

9. NECAT shall submit channel and/or bandwidth allocation recommendations to the CATV special committee. The CATV special committee shall allocate and coordinate access to channel and/or bandwidth capacity provided pursuant to the requirements imposed by law or by agreement upon owners and operators of franchises for cable communications, provided such allocation and coordination of access shall not become effective unless and until ratified by the council by resolution. (Ord. BL2022-1528 § 8, 2023; Ord. BL2010-614 §§ 2, 3, 2010; Ord. 2001-840 § 1, 2001; Ord. 95-1368 § 2 (part), 1995)

6.08.090 Consumer protection and customer service.

Any cable franchisee that obtains a cable franchise from the metropolitan government must agree to affirmatively comply with the state's consumer protection laws and the FCC's rules and regulations concerning consumer protection and customer service located in the Cable Television Consumer Protection and Competition Act of 1992 (the "Cable Act"). (Ord. BL2013-396 § 8, 2013; Ord. 95-1368 § 2 (part), 1995)

6.08.100 Reserved.

Editor's note—Ord. BL2013-396, § 9, adopted April 16, 2013, repealed § 6.08.100, which pertained to rate regulation and derived from Ord. 95-1368 § 2 (part), 1995.

6.08.110 Reserved.

Editor's note—Ord. BL2013-396, § 9, adopted April 16, 2013, repealed § 6.08.110, which pertained to franchise fee and derived from Ord. 95-1368 § 2 (part), 1995.

6.08.120 Insurance—Surety—Indemnification.

A. Insurance Required. A franchisee shall maintain, and by its acceptance of a franchise specifically agrees that it will maintain, throughout the entire length of the franchise period, at least the following liability insurance coverage insuring Metropolitan Nashville and the

franchisee: Worker's compensation and employer liability insurance to meet all requirements of Tennessee law and comprehensive general liability insurance with respect to the construction, operation, and maintenance of the cable system, and the conduct of the franchisee's business in Metropolitan Nashville, in the minimum amounts of:

1. Three million dollars for property damage resulting from any one accident;

2. One million dollars for personal bodily injury and death for any one person;

3. Five million dollars for personal bodily injury or death resulting from any one accident; and

4. Two million dollars for all other types of liability. Metropolitan Nashville may review these amounts no more than once every three years and may require reasonable adjustments to them consistent with the public interest. In the event that the franchisee objects to an increase in a policy limit and the parties are unable to agree on a mutually acceptable amount, the dispute shall be resolved by arbitration in accordance with the procedures of the American Arbitration Association.

B. Qualifications of Sureties. All insurance policies shall be with sureties qualified to do business in the State of Tennessee, with an A-1 or better rating of insurance by Best's Key Rating Guide, Property/ Casualty Edition, and in a form approved by Metropolitan Nashville.

C. Policies Available for Review. A franchisee shall keep on file with Metropolitan Nashville certificates of insurance.

D. Additional Insureds—Prior Notice of Policy Cancellation. All general liability insurance policies shall name Metropolitan Nashville, its officers, boards, commissions, commissioners, agents, and employees as additional insureds and shall further provide that any cancellation or reduction in coverage shall not be effective unless thirty days' prior written notice thereof has been given to Metropolitan Nashville. A franchisee shall not cancel any required insurance policy without submission of proof that the franchisee has obtained alternative insurance satisfactory to Metropolitan Nashville which complies with this chapter.

E. Failure Constitutes Material Violation. Failure to comply with the insurance requirements set forth in this section shall constitute a material violation of a franchise.

F. Indemnification.

1. A franchisee shall, at its sole cost and expense, indemnify, hold harmless, and defend Metropolitan Nashville, its officials, boards, commissions, commissioners, agents, and employees, against any and all claims, suits, causes of action, proceedings, and judgments for damages or equitable relief arising out of the construction, maintenance, or operation of its cable system; copyright infringements or a failure by the franchisee to secure consents from the owners, authorized distributors, or franchisees of programs to be delivered by the cable system; the conduct of the franchisee's business in Metropolitan Nashville; or in any way arising out of the franchisee's enjoyment or exercise of its franchise, regardless of whether the act or omission complained of is authorized, allowed, or prohibited by this chapter or a franchise agreement.

2. Specifically, a franchisee shall, at its sole cost and expense, fully indemnify, defend, and hold harmless Metropolitan Nashville, and in its capacity as such, the officers, agents, and employees thereof, from and against any and all claims, suits, actions, liability, and judgments for damages or otherwise subject to Section 638 of the Cable Act, 47 U.S.C. Section 558, arising out of or alleged to arise out of the installation, construction, operation, or maintenance of its system, including but not limited to any claim against the franchisee for invasion of the right of privacy, defamation of any person, firm or corporation, or the violation or infringement of any copyright, trademark, trade name, service mark, or patent, or of any other right of any person, firm, or corporation. This indemnity does not apply to (a) programming carried on any channel set aside for public, educational, or government use, or channels leased pursuant to 47 U.S.C. Section 532, unless the franchisee was in any respect engaged in determining the editorial content of the program, or adopts a policy of prescreening programming for the purported purpose of banning or regulating indecent or obscene programming; or (b) liability arising solely out of Metropolitan Nashville's gross negligence or that of its officers, employees, agents, or independent contractors.

3. The indemnity provision includes, but is not limited to, Metropolitan Nashville's reasonable attorneys' fees incurred in defending against any such claim, suit, or proceeding.

4. No claim of indemnity shall be valid unless Metropolitan Nashville has provided the franchisee with prompt notice and a timely opportunity to assume the defense of a claim covered by the indemnity.

G. No Limit of Liability. Neither the provisions of this section nor any damages recovered by Metropolitan Nashville shall be construed to limit the liability of a franchisee for damages under any franchise issued hereunder. (Ord. 95-1368 § 2 (part), 1995)

6.08.130 Performance guarantees and remedies.

A. Security Fund.

1. Prior to a franchise's becoming effective, Metropolitan Nashville may require the franchisee to post with Metropolitan Nashville a cash security deposit

to be used as a security fund to ensure the franchisee's faithful performance of and compliance with all provisions of this chapter, the franchise agreement, and other applicable law, and compliance with all orders, permits, and directions of Metropolitan Nashville, and the payment by the franchisee of any claims, liens, fees, or taxes due Metropolitan Nashville which arise by reason of the construction, operation, or maintenance of the system. The amount of the security fund shall be specified in the franchise agreement, but may not exceed five percent of the franchisee's projected annual average gross revenues.

2. In lieu of a cash security fund, a franchisee may file and maintain with Metropolitan Nashville an irrevocable letter of credit or a corporate surety bond with an acceptable surety in the amount specified in its franchise agreement to serve the same purposes as the cash security fund. Said letter of credit or bond shall remain in effect for the full term of the franchise plus an additional six months thereafter. The franchisee and its surety shall be jointly and severally liable under the terms of the letter of credit or bond for the franchisee's failure to ensure its faithful performance of and compliance with all provisions of this chapter, the franchise agreement, and other applicable law, and compliance with all orders, permits, and directions of Metropolitan Nashville, and the payment by the franchisee of any claims, liens, fees, or taxes due Metropolitan Nashville which arise by reason of the construction, operation, or maintenance of the system. The letter of credit or bond shall provide for thirty days' prior written notice to Metropolitan Nashville of any intention on the part of the franchisee to cancel, fail to renew, or otherwise materially alter its terms. Neither the filing of a letter of credit or bond with Metropolitan Nashville, nor the receipt of any damages recovered by Metropolitan Nashville thereunder, shall be construed to excuse faithful performance by the franchisee or limit the liability of the franchisee under the terms of its franchise for damages, either to the full amount of the letter of credit or bond, or otherwise.

3. The rights reserved to Metropolitan Nashville with respect to the security fund are in addition to all other rights of Metropolitan Nashville, whether reserved by this chapter or authorized by other law or a franchise agreement, and no action, proceeding, or exercise of a right with respect to such security fund or letter of credit will affect any other right Metropolitan Nashville may have.

4. The following procedures shall apply to drawing on the security fund and letter of credit:

a. If the franchisee fails to make timely payment to Metropolitan Nashville of any amount due as a result of a franchise, fails to make timely payment to Metropolitan Nashville of any amounts due under a franchise agreement or applicable law, fails to make timely payment to Metropolitan Nashville of any taxes due, or fails to compensate Metropolitan Nashville within ten days of written notification that such compensation is due, for any damages, costs, or expenses Metropolitan Nashville suffers or incurs by reason of any act or omission of the franchisee in connection with its franchise agreement or the enforcement of its franchise agreement after ten days' notice to comply with any provision of the franchise or franchise agreement that Metropolitan Nashville determines can be remedied by an expenditure of the security, Metropolitan Nashville may withdraw the amount thereof, with interest and any penalties, from the security fund or from funds available under the letter of credit or bond.

b. Within three days of a withdrawal from the security fund or under the letter of credit or bond, Metropolitan Nashville shall mail, by certified mail, return receipt requested, written notification of the amount, date, and purpose of such withdrawal to the franchisee.

c. If at the time of a withdrawal from the security fund or under the letter of credit or bond by Metropolitan Nashville, the amounts available are insufficient to provide the total payment towards which the withdrawal is directed, the balance of such payment shall continue as the obligation of the franchisee to Metropolitan Nashville until it is paid.

d. No later than thirty days after mailing of notification to the franchisee by certified mail, return receipt requested, of a withdrawal under the security fund, letter of credit or bond, the franchisee shall deliver to Metropolitan Nashville for deposit in the security fund an amount equal to the amount so withdrawn and shall restore the letter of credit or bond. Failure to make timely delivery of such amount to Metropolitan Nashville or to restore the letter of credit or bond shall constitute a material violation of the franchise.

e. Upon termination of the franchise under conditions other than those stipulating forfeiture of the security fund, the balance then remaining in the security fund, together with any interest then accrued, shall be withdrawn by Metropolitan Nashville and paid to the franchisee within ninety days of such termination, provided that there is then no outstanding default on the part of the franchisee.

B. Performance Bond.

1. Prior to any cable system construction, upgrade, or other work in the public rights-of-way, a franchisee shall establish in Metropolitan Nashville's favor a performance bond in an amount specified in the franchise agreement or other authorization as necessary to ensure

the franchisee's faithful performance of the construction, upgrade, or other work. The amount of such performance bond shall be equal to ten percent of the total cost of the work, but shall not exceed three hundred thousand dollars.

2. In the event a franchisee subject to such a performance bond fails to complete the cable system construction, upgrade, or other work in the public rights-of-way in a safe, timely, and competent manner in accord with the provisions of a franchise agreement, there shall be recoverable, jointly and severally from the principal and surety of the bond, any damages or loss suffered by Metropolitan Nashville as a result, including the full amount of any compensation, indemnification, or cost of removal or abandonment of any property of the franchisee, or the cost of completing or repairing the system construction, upgrade, or other work in the public rights-of-way, plus a reasonable allowance for attorneys' fees, up to the full amount of the bond. Metropolitan Nashville may also recover against the bond any amount recoverable against the security fund where such amount exceeds that available under the security fund.

3. Upon completion of the system construction, upgrade, or other work in the public rights-of-way and payment of all construction obligations of the cable system to the satisfaction of Metropolitan Nashville, Metropolitan Nashville shall eliminate the bond or reduce its amount after a time appropriate to determine whether the work performed was satisfactory, which time shall be established considering the nature of the work performed. Metropolitan Nashville may subsequently require a new bond or an increase in the bond amount for any subsequent construction, upgrade, or other work in the public rights-of-way. In any event, the total amount of the bond shall equal ten percent of the cost of the work, but shall not exceed three hundred thousand dollars.

4. The performance bond shall be issued by a surety with an A-1 or better rating of insurance in Best's Key Rating Guide, Property/Casualty Edition; shall be subject to the approval of Metropolitan Nashville; and shall contain the following endorsement:

> This bond may not be canceled, or allowed to lapse, until sixty (60) days after receipt by Metropolitan Nashville, by certified mail, return receipt requested, of a written notice from the issuer of the bond of intent to cancel or not to renew.

C. Failure Constitutes Material Violation. Failure to maintain the security fund, letter of credit, or performance bond shall constitute a material violation of a franchise.

D. Remedies. In addition to any other remedies available at law or equity, Metropolitan Nashville may pursue the following remedies in the event a franchisee violates this chapter, its franchise agreement, other applicable ordinances, or applicable state or federal law:

1. Revoke the franchise pursuant to the procedures specified in this chapter;

2. Impose any penalties available under applicable state and local laws for violation of city ordinances;

3. Seek legal or equitable relief from any court of competent jurisdiction;

4. Apply any remedy provided for in a franchise agreement, including liquidated damages, if any.

E. Reserved.

F. Obligation of Compliance. Metropolitan Nashville's exercise of a remedy or franchisee's payment of liquidated damages or penalties relieve a franchisee of its obligations to comply with its franchise. In addition, Metropolitan Nashville may exercise any rights it has at law or equity.

G. Relation to Insurance and Indemnity Requirements. Recovery by Metropolitan Nashville of any amounts under insurance, the performance bond, the security fund or letter of credit, or otherwise does not limit a franchisee's duty to indemnify Metropolitan Nashville in any way; nor shall such recovery relieve a franchisee of its obligations under a franchise, limit the amounts owed to Metropolitan Nashville, or in any respect prevent Metropolitan Nashville from exercising any other right or remedy it may have. (Ord. BL2013-396 § 9, 2013; Ord. 95-1368 § 2 (part), 1995)

6.08.140 Reserved.

Editor's note—Ord. BL2013-396, § 9, adopted April 16, 2013, repealed § 6.08.140, which pertained to transfers and derived from Ord. 95-1368 § 2 (part), 1995.

6.08.150 Discrimination prohibited.

A. Discriminatory Practices Prohibited.

1. A franchisee shall not deny service, deny access, or otherwise discriminate against subscribers, programmers, or residents of Metropolitan Nashville on the basis of race, color, religion, national origin, sex, or age.

2. A franchisee shall not discriminate among persons or take any retaliatory action against a person because of that person's exercise of any right it may have under federal, state, or local law, nor may the franchisee require a person to waive such rights as a condition of taking service.

3. A franchisee shall not deny access or levy different rates and charges on any group of potential residential cable subscribers because of the income of the residents of the local area in which such group resides.

4. A franchisee is prohibited from discriminating in its rates or charges or from granting undue preferences to any subscriber, potential subscriber, or group of subscribers or potential subscribers; provided, however, that subject to subsection D of this section, a franchisee may offer temporary, bona fide promotional discounts in order to attract or maintain subscribers, so long as such discounts are offered on a nondiscriminatory basis to similar classes of subscribers throughout Metropolitan Nashville; and a franchisee may offer discounts for the elderly, the handicapped, or the economically disadvantaged, and such other discounts as it is expressly entitled to provide under federal law, if such discounts are applied in a uniform and consistent manner. A franchisee shall comply at all times with all applicable federal, state, and city laws, and all executive and administrative orders relating to nondiscrimination.

B. Equal Employment Opportunity. A franchisee shall not refuse to employ, discharge from employment, or discriminate against any person in compensation or in terms, conditions, or privileges of employment because of race, color, religion, national origin, sex, or age. A franchisee shall comply with all federal, state, and local laws and regulations governing equal employment opportunities, as the same may be from time to time amended.

C. Subscriber Privacy.

1. A franchisee shall at all times protect the privacy of all subscribers pursuant to the provisions of Section 631 of the Cable Act, 47 U.S.C. Section 551. A franchisee shall not condition subscriber service on the subscriber's grant of permission to disclose information which, pursuant to federal or state law, cannot be disclosed without the subscriber's explicit consent.

2. Except to the extent permitted by the Cable Act, neither a franchisee nor its agents or employees shall, without the prior and specific written authorization of the subscriber involved, sell or otherwise make available for commercial purposes the names, addresses, or telephone numbers of any subscriber or subscribers, or any information that identifies the individual viewing habits of any subscriber or subscribers.

3. Neither the franchisee nor any other person, agency or entity shall tap or arrange for the tapping of any cable, line, signal input device, or subscriber outlet or receiver that is part of a cable system for any purpose whatsoever.

4. No subliminal transmission shall be utilized at any time, for any purpose whatsoever.

5. A franchisee shall not utilize any two-way communications capability of the system for unauthorized subscriber surveillance of any kind.

D. Uniform Rates. A franchisee shall have a rate structure for the provision of cable services that is uniform throughout the geographic area in which it provides cable service over its cable system. Notwithstanding the foregoing, a franchisee may conduct experimental services and service offerings to particular regions of its franchise area without making such experimental services available throughout its franchise area; provided, that such experimental service offerings are offered on a nondiscriminatory basis to similar classes of subscribers. (Ord. 95-1368 § 2 (part), 1995)

6.08.160 Miscellaneous provisions.

A. Compliance With Laws. Each franchisee shall comply with all federal and Tennessee laws, as well as Metropolitan Nashville ordinances, resolutions, rules and regulations heretofore and hereafter adopted or established during the entire term of its franchise.

B. No Recourse Against Metropolitan Nashville. Without limiting such immunities as Metropolitan Nashville or other persons may have under applicable law, a franchisee shall have no recourse whatsoever against Metropolitan Nashville or its officials, boards, commissions, agents or employees for any loss, costs, expense or damage arising out of any provision or requirement of this chapter or because of the enforcement of this chapter or Metropolitan Nashville's exercise of its authority pursuant to this chapter or other applicable law, unless the same shall be caused by criminal acts or by wilful misconduct or gross negligence.

C. Rights.

1. The rights reserved to Metropolitan Nashville by this chapter are cumulative and shall be in addition to and not in derogation of any other rights which it may have with respect to the subject matter of this chapter.

2. Metropolitan Nashville reserves to itself the right to intervene in any suit, action or proceeding involving any provision of this chapter.

3. No franchisee shall be relieved of its obligation to comply with any of the provisions of this chapter by reason of any failure of Metropolitan Nashville to enforce prompt compliance. Nor shall any inaction by Metropolitan Nashville be deemed to waive a provision voiding any provision of this chapter.

D. Amendments to this Ordinance. In order to fulfill the public interest goals of this chapter, to provide additional communications service to Metropolitan Nashville through the use of cable television and thereby

to ensure the benefits which will result from such service, Metropolitan Nashville shall specifically reserve the right in any franchise granted to amend this chapter to effectuate the public interest in the operation of a cable television system.

E. Incorporation by Reference. Any franchise granted pursuant to this chapter shall include a provision which shall incorporate by reference this chapter into such franchise as fully as if copied therein verbatim.

F. Force Majeure. A franchisee shall not be deemed in default with provisions of its franchise where performance was rendered impossible by war or riots, civil disturbances, floods, or other natural catastrophes beyond the franchisee's control, and a franchise shall not be revoked or a franchisee penalized for such noncompliance, provided that the franchisee takes immediate and diligent steps to bring itself back into compliance and to comply as soon as possible under the circumstances with its franchise without unduly endangering the health, safety, and integrity of the franchisee's employees or property, or the health, safety, and integrity of the public, public rights-of-way, public property, or private property.

G. Public Emergency. In the event of a major public emergency or disaster as determined by Metropolitan Nashville, a franchisee immediately shall make the entire cable system, employees, and property, as may be necessary, available for use by Metropolitan Nashville or other civil defense or governmental agency designated by Metropolitan Nashville to operate the system for the term of such emergency or disaster for the emergency purposes. In the event of such use, a franchisee shall waive any claim that such use by Metropolitan Nashville constitutes a use of eminent domain; provided that Metropolitan Nashville shall return use of the entire system, employees, and property to the franchisee after the emergency or disaster has ended or has been dealt with.

H. Connections to System—Use of Antennae.

1. Subscribers shall have the right to attach devices to a franchisee's system to allow them to transmit signals or services for which they have paid to VCR's, receivers, and other terminal equipment. Subscribers also shall have the right to use their own remote control devices and converters, and other similar equipment, and a franchisee shall provide information to consumers which will allow them to adjust such devices so that they may be used with the franchisee's system.

2. A franchisee shall not, as a condition of providing service, require a subscriber or potential subscriber to remove any existing antenna, or disconnect an antenna except at the express direction of the subscriber or potential subscriber, or prohibit or discourage a subscriber from installing an antenna switch; provided that such equipment and installations are consistent with applicable codes.

I. Calculation of Time. Unless otherwise provided, when the performance or doing of any act, duty, matter, or payment is required under this chapter or any franchise agreement, and a period of time or duration for the fulfillment of doing thereof is prescribed and is fixed herein, the time shall be computed so as to exclude the first and include the last day of the prescribed or fixed period of duration time.

J. Severability. If any term, condition, or provision of this chapter shall, to any extent, be held to be invalid or unenforceable, the remainder hereof shall be valid in all other respects and continue to be effective. In the event of a subsequent change in applicable law so that the provision which had been held invalid is no longer invalid, said provision shall thereupon return to full force and effect without further action by Metropolitan Nashville and shall thereafter be binding on the franchisee and Metropolitan Nashville.

K. Notice. Every direction, notice or order to be served upon the franchisee shall be sent to its local office, which shall be located in the franchise area. Every notice to be served upon Metropolitan Nashville shall be delivered, with registered letter by registry receipt, to the metropolitan clerk at the Metropolitan Courthouse. The delivery or mailing of such notice, direction or order shall be equivalent to direct personal notice, direction or order, and shall be deemed to have been given at the time of delivery.

L. Materiality. Specific mention of the materiality of any of the provisions herein is not intended to be exclusive of any others for the purpose of determining whether any failure of compliance hereunder is material and substantial.

M. Right of Intervention. Metropolitan Nashville may intervene in any suit or proceeding in which the franchisee is a party; provided, that Metropolitan Nashville's interests are not adequately represented by the existing parties; and provided further, that the disposition of each suit or proceeding without Metropolitan Nashville's participation, may as a practical matter, impair or impede Metropolitan Nashville's ability to protect its interests. (Ord. 95-1368 § 2 (part), 1995)

Chapter 6.10

RESERVED*

*Editor's note—Ord. BL2010-614, § 1, adopted February 16, 2010, approved February 19, 2010, repealed Ch. 6.10, which pertained to public, educational and governmental access oversight committee and derived from Ord. 2001-839 §§ 1—4, 2001; Ord. 95-1517 §§ 1—4, 1995.

Chapter 6.12

RESERVED*

*__Editor's note—__Ord. BL2016-221, § 1, adopted June 7, 2016, approved June 8, 2016, repealed Ch. 6.12, which pertained to dances and dancehalls and derived from prior Code §§ 7-1-1—7-1-5, 7-1-8; Ord. 98-1474 §§ 1, 2, 1999.

Chapter 6.14

FOREIGN TRADE ZONES

Sections:

6.14.010 Establishment—Management.
6.14.020 Approval of agreements.

6.14.010 Establishment—Management.

The establishment and management of foreign trade zones and foreign trade subzones as authorized by Tennessee Code Annotated Section 7-85-101, et seq., as the same may be amended or recodified, shall be an administrative responsibility of the mayor's office of economic and community development. (Ord. BL2000-499 § 1 (part), 2000)

6.14.020 Approval of agreements.

Any contractual agreement for the operation and maintenance of a foreign trade zone or foreign trade subzone may be approved by resolution of the metropolitan council receiving twenty-one votes. (Ord. BL2000-499 § 1 (part), 2000)

Chapter 6.16

RESERVED*

*Editor's note—Ord. BL2012-261, § 9, adopted Oct. 16, 2012, repealed Ch. 6.16, §§ 6.16.010—6.16.090, which pertained to self-service dry cleaning establishments and derived from prior Code §§ 20-1-193—20-1-201.

Chapter 6.20

ELECTRICIANS, ELECTRICAL CONTRACTORS AND EQUIPMENT INSTALLERS

Sections:

Article I. General Provisions

6.20.010 Registrations and licenses—Required—Classifications established.
6.20.020 Registrations and licenses—Classifications defined.
6.20.030 Registration and licensure requirements.
6.20.031 Records available to the public.
6.20.040 Application for examination and licensure.
6.20.050 Examination—Notice.
6.20.060 Examination—Conducting authority—Type.
6.20.070 Examination—Failure to appear.
6.20.080 Reexamination.
6.20.090 Licensure issuance conditions.
6.20.100 Fees—Examination, licensure and renewal.
6.20.110 Certificate of licensure—Expiration and renewal—Recordation.
6.20.120 Registrations or licenses—Revocation and suspension.
6.20.121 Reserved.
6.20.125 Altering or lending a license or using another's license unlawful—Penalties.
6.20.129 Temporary license.

Article II. Electrical Contractors

6.20.130 Requirements for registration.
6.20.140 Registration—Required When.
6.20.150 Duties of electrical contractors, equipment contractors and low-voltage contractors.
6.20.160 Change of status notification required—Failure to employ authorized contractors unlawful.
6.20.170 Work stoppage order.
6.20.180 Appeal from work stoppage order.

Article III. Equipment Installers

6.20.200 Equipment installer defined.
6.20.210 Registration required.
6.20.220 Licensure requirements.
6.20.240 Permitted activities and duties.

Article IV. Master Electricians, Electrical Equipment Installers, Low-Voltage Wiring Installers, Metropolitan Journeyman Electricians, Metropolitan Apprentice Electricians, and Metropolitan Beginning Electricians

6.20.250 Requirements for license.
6.20.260 Duties.
6.20.270 Active registration required.
6.20.280 Licenses placed on inactive status—Reactivation.
6.20.290—6.20.350 Reserved.

Article V. Maintenance Electrician

6.20.360 Limitation on work—Penalties for violations.

Article I. General Provisions*

6.20.010 Registrations and licenses—Required—Classifications established.

A. Except as hereinafter provided, it is unlawful for any person to perform electrical work within the area of jurisdiction of the metropolitan government unless such person is licensed and registered under the provisions of this chapter. For the purpose of this code, "electrical work" means the construction, renovation, installation, alteration, extension, removal, reparation, maintenance or servicing of any electrical system.

B. For the purpose of this code, every person engaged in electrical work within the area of jurisdiction of the metropolitan government, shall be "licensed" by the metropolitan board of electrical examiners and appeals and "registered" by the department of codes administration.

C. For the purpose of this code, the classification of the various licenses and registrations of the electrical industry shall be:

1. Electrical contractor;
2. Master electrician;
3. Equipment contractor;
4. Electrical equipment installer;
5. Low-voltage contractor;
6. Low-voltage wiring installer;

*__Editor's note—__Ord. BL2013-570, § 1, passed Nov. 19, 2013, repealed the former Art. I, §§ 6.20.010—6.20.125, and enacted a new Art. I as set out herein. The former Art. I pertained to similar subject matter and derived from Code §§ 14-1-60—14-1-71; Ord. 91-1558 §§ 4, 12—19, 1991.

7. Metropolitan journeyman electrician;
8. Metropolitan apprentice electrician;
9. Metropolitan beginning electrician.

D. For the purpose of this code, a person classified as a maintenance electrician need not and will not be licensed and registered by the department of codes administration. (Ord. BL2013-570 § 1, 2013)

6.20.020 Registrations and licenses—Classifications defined.

In this chapter:

A. "Electrical contractor" means any person registered to engage in the business of installing, erecting, altering, repairing or contracting to install, erect, alter or repair electric wires, conductors, material, machinery, apparatus or systems used for the transmission of electrical energy for light, heat, power, control or signal purposes.

B. "Master electrician" means any person licensed to obtain electrical permits and supervise the installation of electrical work.

C. "Equipment contractor" means any person registered to engage in the business of electrical wiring of equipment, including but not limited to HVAC systems, swimming pools and associated equipment, electric signs, gasoline dispensing units, and other similar equipment and devices.

D. "Electrical equipment installer" means any person licensed to install and engage in the electrical wiring of equipment, including but not limited to HVAC systems, swimming pools and associated equipment, electric signs, gasoline dispensing units, and other similar equipment and devices.

E. "Low-voltage contractor" means any person registered to engage in the business of installing, erecting, altering, repairing or contracting to install, erect, alter or repair electric wires, conductors, material, machinery, apparatus or systems operating at fifty volts or less, used for Class 1, Class 2 and Class 3 remote control, signaling and power-limited circuits, fire-protective signaling systems, communications circuits and coaxial cable distribution of radio frequency signals.

F. "Low-voltage wiring installer" means any person licensed to obtain electrical permits and supervise the installation of Class 1, Class 2 and Class 3 remote control, signaling and power-limited circuits, fire-protective signaling systems, communications circuits and coaxial cable distributing of radio frequency signals.

G. "Maintenance electrician" means any person engaged in the maintenance, repair or modification of existing electrical installations.

H. "Metropolitan journeyman electrician" means an individual who has successfully completed the journeyman electrician's examination and holds a current and valid journeyman electrician's license duly issued by the metropolitan board of electrical examiners and appeals; one who has successfully completed an electrical construction apprenticeship; or one who is regularly employed as a journeyman and works under the direction and supervision of an electrical contractor or master electrician.

I. "Metropolitan apprentice electrician" means an individual who is enrolled in an apprenticeship program registered with the U.S. Department of Labor, Bureau of Apprenticeship and Training in accordance with the requirements of 29 C.F.R. § 29, or any nationally accredited apprenticeship program, and consists of, at a minimum, eight thousand hours of documented practical experience combined with a minimum of six hundred hours of classroom and/or shop instruction in the electrical trade; works under the direction and supervision of a master electrician or a journeyman electrician and a master electrician or a journeyman electrician must be present on same jobsite.

J. "Metropolitan beginning electrician" means an individual who (1) has no prior electrical experience and is not enrolled in an apprenticeship program; (2) must enroll in an approved apprenticeship program after working a period of one year as a beginning electrician; (3) works under the direction and supervision of a master electrician or a journeyman electrician and a master electrician or a journeyman electrician must be present on same jobsite and at any time for any electrical wiring project; (4) the total number of registered beginning electricians at an installation site may not exceed a ratio of five registered beginning electricians and apprentices to one licensed master electrician or one journeyman electrician at any jobsite. (Ord. BL2013-570 § 1, 2013)

6.20.030 Registration and licensure requirements.

It is unlawful for any person to engage in business and/or to perform any electrical work as an electrical contractor, equipment contractor or low-voltage contractor, or to be employed as an electrical contractor, master electrician, equipment contractor, electrical equipment installer, low-voltage contractor, low-voltage wiring installer, metropolitan journeyman electrician, or metropolitan apprentice electrician without first having been licensed as such by the metropolitan board of electrical examiners and appeals and registered by the department of codes administration. No electrical contractor, journeyman electrician, apprentice electrician, beginning electrician, equipment contractor, electrical equipment in-

staller, low-voltage contractor or low-voltage wiring installer may substitute as a master electrician unless that person has satisfied the qualifications for and been licensed as a master electrician. (Ord. BL2013-570 § 1, 2013)

6.20.031 Records available to the public.

The names of all licensees shall be available to the public to verify that electricians wiring homes and places of business are licensed to do electrical work. (Ord. BL2013-570 § 1, 2013)

6.20.040 Application for examination and licensure.

A. It shall be the duty of every person engaged in or desiring to engage in the business of electrical work, to do or perform any electrical work or to make any electrical installation as a master electrician, journeyman electrician, apprentice electrician, beginning electrician, or low-voltage wiring installer to make application to the metropolitan board of electrical examiners and appeals for an examination and issuance of a license; present licenses and low-voltage wiring installers defined below are exempted. Application for an examination and license shall be made on forms provided by the director of codes administration and shall be accompanied by the required examination fee, as hereinafter set forth.

B. For the purpose of this code, every person engaged in electrical work, for which an electrical permit is required, within the area of jurisdiction of the metropolitan government, shall be 'licensed' by the metropolitan board of electrical examiners and appeals or 'registered' by the department of codes administration. Notwithstanding the foregoing to the contrary, for the purpose of this code, every person engaged in electrical work who is employed by a registered equipment contractor and performing electrical equipment installations under the supervision of a licensed electrical equipment installer need not be individually licensed as an electrician under this chapter.

C. In addition to the requirements in subsection A. of this section, each applicant must furnish evidence that he/she has at least five (5) years' experience in the classification applied for or the classification immediately below the classification applied for. Apprentice electricians and beginning electricians are not required to have prior electrical experience. (Amdt. 1 to Ord. BL2013-570 § 1, 2013; Ord. BL2013-570 § 1, 2013)

6.20.050 Examination—Notice.

Each applicant for licensing and registration as a master electrician, electrical equipment installer, low-voltage wiring installer, or metropolitan journeyman electrician shall be notified, in writing, by the secretary of the board, as to the time and place of such examination not less than seven days prior to the date scheduled for such examination. (Ord. BL2013-570 § 1, 2013)

6.20.060 Examination—Conducting authority—Type.

A. An examination of each applicant for a master electrician's license, electrical equipment installer's license, low-voltage wiring installer's license, or metropolitan journeyman electrician's license shall be conducted by the department of codes administration at the time and place determined by the board.

B. The examination may be written or oral, or a combination of both, at the discretion of the board, as to the applicant's proficiency in the art of electrical installations and his knowledge of the provisions and material requirements of this chapter and any amendments made thereto, as such are related to the applicant's request for certification.

C. No written examination shall be required of any applicant for a metropolitan apprentice electrician's license or metropolitan beginning electrician. (Ord. BL2013-570 § 1, 2013)

6.20.070 Examination—Failure to appear.

The failure of an applicant to appear before the board of electrical examiners and appeals for examination at the time and place scheduled for such examination shall not be construed as denying any applicant the right to request a rescheduling of such examination at a later date; except, that no application for examination and licensure shall be held that pending by the board, except for just cause, for more than ninety days following receipt of such application. In the event an applicant, after due notice, shall fail to appear before the board for examination, during the ninety-day period, as set forth in this section, the application shall be rejected, the applicant notified of the action taken by the board and the examination fee shall be forfeited. (Ord. BL2013-570 § 1, 2013)

6.20.080 Reexamination.

Any applicant for examination and licensure as a master electrician, electrical equipment installer, low-voltage wiring installer, or metropolitan journeyman electrician who shall fail to pass the examination as required by the metropolitan board of electrical examiners and appeals may not apply for reexamination within thirty days following the date of such examination. (Ord. BL2013-570 § 1, 2013)

6.20.090 Licensure issuance conditions.

The metropolitan board of electrical examiners and appeals shall issue a license in each of the following classifications when the applicant has fulfilled the following requirements:

A. A master electrician's license shall be issued to every applicant who makes proper application for such license, successfully completes the required master electrician's examination, pays the required master electrician's licensure fee, and meets the requirements of Section 6.20.250.

B. An electrical equipment installer's license shall be issued to every applicant who makes proper application for such license, successfully completes an examination designed to measure the applicant's knowledge and ability in his/her field of equipment installation, and pays the required electrical equipment installer's licensure fee.

C. A low-voltage wiring installer's license shall be issued to every applicant who makes proper application for such license, successfully completes an examination designed to measure the applicant's knowledge and ability in his/her field of equipment installation, and pays the required low-voltage wiring installer's licensure fee.

D. A metropolitan journeyman electrician's license shall be issued to every applicant who makes proper application for such license, successfully completes the required journeyman electrician's examination, pays the required journeyman electrician's licensing fee and submits satisfactory evidence to the board that he is or will be regularly employed as a journeyman electrician by a duly registered and bonded metropolitan electrical contractor and works under the direction and supervision of a licensed master electrician.

E. A metropolitan apprentice electrician's license shall be issued to every applicant who pays the required apprentice electrician's licensing fee and meets the requirements of Section 6.20.020 I.

F. A metropolitan beginning electrician's license shall be issued to every applicant who pays the required apprentice electrician's licensing fee and meets the requirements of Section 6.20.020 J.

G. Notwithstanding any other provision of this chapter to the contrary, journeyman electricians or apprentice electricians who meet the requirements of Sections 6.20.040 D. and Section 6.20.250 at the time of the enactment of the ordinance requiring the licensing of journeyman electricians and apprentice electricians, shall be entitled to all of the rights and privileges of a licensed journeyman electrician or licensed apprentice electrician.

H. The metropolitan board of electrical examiners shall be authorized to issue to those applicants holding equivalent licensees in other states upon a completed application, payment of the required fees, and submission of proof of license in that state. (Ord. BL2013-570 § 1, 2013)

6.20.100 Fees—Examination, licensure and renewal.

The fees for examination and licensure of master electricians, electrical equipment installers, low-voltage wiring installers, journeyman electricians, apprentice electricians, and beginning electricians shall be as follows:

Classification	Examination Fee	Original Certificate	Renewal Certificate
Electrical contractor	N/A	N/A	N/A
Master electrician	$50.00	$150.00	$100.00
Equipment contractor	N/A	N/A	N/A
Electrical equipment installer	$50.00	$75.00	$50.00
Low-voltage contractor	N/A	N/A	N/A
Low-voltage wiring installer	$50.00	$75.00	$50.00
Metropolitan journeyman electrician	$50.00	$100.00	$100.00
Apprentice electrician	N/A	$25.00	$25.00
Beginning electrician	N/A	$15.00	$15.00

(Ord. BL2013-570 § 1, 2013)

6.20.110 Certificate of licensure—Expiration and renewal—Recordation.

A. Beginning in 1992, each license issued by the board shall expire on the last day of March following issuance and shall become invalid unless renewed. Such license shall be renewed annually and recorded in the office of the director of codes administration on or before the first day of April each year, and such records shall be open to public inspection during the normal working hours of the department of codes administration.

B. Late renewal of licenses shall be accepted for a period of one year following the required renewal date. Application for late renewal shall be accompanied by the required renewal fee plus an amount equal to ten percent of the regular fee for each calendar month or portion of a month of delinquency.

C. Licenses which have not been renewed for one calendar year following the required renewal date will be revoked and license holders will be required to reapply for licensing. (Ord. BL2013-570 § 1, 2013)

6.20.120 Registrations or licenses—Revocation and suspension.

A. The metropolitan board of electrical examiners may issue stop work orders and shall revoke or suspend a registration or license issued to any electrical contractor, master electrician, equipment contractor, electrical equipment installer, low-voltage contractor, low-voltage wiring installer, metropolitan journeyman electrician, metropolitan apprentice electrician, or metropolitan beginning electrician upon positive proof that such person:

1. Knowingly violated the provisions of this chapter or the rules and regulations of the board;

2. Practiced fraud or deception in making application for or obtaining such registration or license;

3. Has become incompetent under the provisions of this chapter to perform a service to the public as an electrical contractor, master electrician, equipment contractor, electrical equipment installer, low-voltage contractor, low-voltage wiring installer, metropolitan journeyman electrician, metropolitan apprentice electrician, or metropolitan beginning electrician;

4. Permitted his/her license or registration to be used, directly or indirectly, by another to obtain or perform electrical work or services;

5. Is guilty of such other unprofessional or dishonorable conduct of such nature as to deceive or defraud the public;

6. Permitting himself or his company to represent itself as in the business or art of electrical services unless it employs a master electrician;

7. Knowingly took out a permit for work to be done by persons without a license issued by the board of electrical examiners and appeals to engage in electrical work, including the construction, renovation, installation, alteration, extension, removal, reparation, maintenance, or servicing of any electrical systems for which a permit is required, as a master electrician, electrical equipment installer, or low-voltage wiring installer.

B. The metropolitan board of electrical examiners and appeals shall revoke or suspend a registration or license issued to any master electrician who knowingly obtains an electrical permit for work to be done by a person or persons without a license issued by the board of electrical examiners and appeals, or who does not personally supervise the installation of electrical work for which an electrical permit has been obtained.

C. No action of the board to suspend or revoke a certificate of registration shall become final until the alleged offender has been given an opportunity to appear before the board to show cause as to why such action should not be taken.

D. Notice in writing of the proposed action of the board to revoke or suspend a registration or license shall be given to the holder of such registration or license, stating the specific charges upon which such action is based. The notice shall stipulate that a hearing will be scheduled at time and place set by the board for the aggrieved party to show cause why such action should not be made final. Such hearing shall not be held less than forty-eight hours following notice to the aggrieved party. Failure to appear before the board to answer the specific charges set forth in the notice shall be deemed just cause for final revocation or suspension of a registration or license.

E. In the event a registration or license is revoked by the board, an application for reinstatement of such license shall not be accepted by the board within twelve months after the date of such revocation.

F. The department of codes administration shall have the authority through use of initial work-site inspections, scheduled work-site inspections, and unannounced work-site inspections to report any ground for possible revocation or suspension to the board of electrical examiners. (Ord. BL2013-570 § 1, 2013)

6.20.121 Reserved.

Editor's note—Amdt. 1 to Ord. BL2013-570 § 1, passed Nov. 19, 2013, repealed § 6.20.121, which pertained to continuing education requirements and derived from Ord. BL2013-570 § 1, 2013.

6.20.125 Altering or lending a license or using another's license unlawful—Penalties.

A. It shall be a misdemeanor for any person to do electrical work for which a permit is required unless that person has a valid license and registration as required by this chapter.

B. It shall be a misdemeanor for any person licensed or registered under this article to alter, transfer, lend or rent his/her license or registration to another or to use a license or registration not his/her own.

C. It shall be a misdemeanor for any person to represent himself/herself falsely to be licensed under this article, or wrongfully to use a license issued by the metropolitan board of electrical examiners and appeals. (Ord. BL2013-570 § 1, 2013)

6.20.129 Temporary license.

A. The board of electrical examiners shall issue a temporary license as a master electrician or journeyman electrician for a period of six months, upon submission by the applicant the following:

1. A temporary license fee in the amount of fifty dollars for a master electrician and twenty-five dollars for a journeyman electrician; and

2. A completed application on a form provided by the board of electrical examiners; and

3. Evidence that the applicant holds a current license of the same classification issued by another state or has otherwise met the experience qualifications established in Section 6.20.040. (Ord. BL2013-570 § 1, 2013)

Article II. Electrical Contractors

6.20.130 Requirements for registration.

A. License Required. Every electrical contractor, equipment contractor and low-voltage contractor shall be required to have an electrical contractor's registration, equipment contractor's registration or low-voltage contractor's registration, from the department of codes administration. All parties to joint ventures shall be registered electrical contractors, equipment contractors or low-voltage wiring contractors.

B. Applications. Applications submitted in the name of a person, firm or corporation shall be submitted in the name of an individual. The name of the individual shall be specified on the application form.

C. Qualifications of Applicants. The applicants for an electrical contractor's registration, equipment contractor's registration or low-voltage contractor's registration shall be qualified by virtue of experience and knowledge to be an electrical contractor, equipment contractor or low-voltage wiring contractor. The individual must maintain a local or toll-free telephone number.

D. Examination. None.

E. Master Electrician Required. No person other than an individual holding a current and valid master electrician's license shall be registered as an electrical contractor by the department of codes administration unless such person employs the full-time services of an individual holding a current and valid master electrician's license duly issued by the metropolitan board of electrical examiners and appeals. Each party to a joint venture shall employ at least one licensed master electrician. Licensed master electricians employed by all parties must sign all permits.

F. Existing Registered Electrical Contractors. Every person, firm or corporation which is validly registered with the department of codes administration as a metropolitan electrical contractor on June 4, 1991, the date of adoption of the ordinance codified in this section, shall be registered as an electrical contractor under the provisions of this chapter; providing, however, that the electrical contractor shall submit within one hundred twenty days the name of the individual required in subsection B above and comply with the provisions of Section 6.20.160 of this code.

G. Affidavit. Each applicant for an electrical contractor's registration proposing to employ the required master electrician shall submit an affidavit to the metropolitan board of electrical examiners and appeals signed by the applicant, specifying the name of the master electrician responsible for the work of the electrical contractor's company or business and stating that he will permit the master electrician to have access to all records pertaining to permits and defects.

H. Equipment Installer Required. No person other than an individual holding a current and valid equipment installer's license shall be registered as an equipment contractor by the department of codes administration unless such person employs the full-time services of an individual holding a current and valid equipment installer's license duly issued by the metropolitan board of electrical examiners and appeals. Each party to a joint venture shall employ at least one licensed equipment installer. Licensed equipment installers employed by all parties must sign all permits.

I. Existing Registered Electrical Equipment Contractors. Every person, firm or corporation which is validly registered with the department of codes administration as a metropolitan electrical equipment contractor on June 4, 1991, the date of adoption of the ordinance codified in this section, shall be registered as an electrical equipment contractor under the provisions of this chapter; providing, however, that the electrical equipment contractor shall submit within one hundred twenty days the name of the individual required in subsection B above and comply with the requirements of Section 6.20.160.

J. Affidavit. Each applicant for an electrical equipment contractor's registration proposing to employ the required equipment installer shall submit an affidavit to the metropolitan board of electrical examiners and appeals, signed by the applicant, specifying the name of the equipment installer responsible for the work of the electrical contractor's company or business and stating that he will permit the equipment installer to have access to all records pertaining to permits and defects.

K. Low-Voltage Wiring Installer Required. No person other than an individual holding a current and valid low-voltage wiring installer's license shall be registered as a low-voltage contractor by the department of codes administration unless such person employs the full-time services of an individual holding a current and valid

low-voltage wiring installer's license duly issued by the metropolitan board of electrical examiners and appeals. Each party to a joint venture shall employ at least one licensed low-voltage wiring installer. Licensed low-voltage wiring installers employed by all parties must sign all permits.

L. Affidavit. Each applicant for a low-voltage contractor's registration proposing to employ the required low-voltage wiring installer shall submit an affidavit to the metropolitan board of electrical examiners and appeals, signed by the applicant, specifying the name of the low-voltage wiring installer responsible for the work of the low-voltage wiring contractor's company or business and stating that he will permit the low-voltage wiring installer to have access to all records pertaining to permits and defects.

M. "Full-time services" in subsections E, H and K above shall be defined to be provided by an individual:

1. Who reports during normal working hours to a place of business established by the electrical contractor, equipment contractor or low-voltage contractor. It must be possible to contact the individual by telephone at the place of business;

2. Who receives all benefits which are offered to other employees by the electrical contractor, equipment contractor or low-voltage contractor;

3. For whom the electrical contractor, equipment contractor or low-voltage contractor withholds federal income tax and pays FICA taxes and workers' compensation. (Ord. 91-1558 § 20, 1991; prior code § 14-1-72)

6.20.140 Registration—Required when.

A. It shall be the duty of every person who shall make contracts for the installation, repair, addition or alteration of any electrical system or any part thereof, for which a permit is required, and every person making such contracts or subletting the same or any part thereof, to register, as required, with the department of codes administration.

B. Each joint venture shall comply with Section 6.20.150 and all Metro ordinances and state laws. Each party to a joint venture must have the appropriate classification. (Ord. 91-1558 §§ 2 (part), 21, 1991; prior code § 14-1-73)

6.20.150 Duties of electrical contractors, equipment contractors and low-voltage contractors.

A. Every person holding an electrical contractor's registration, equipment contractor's registration or low-voltage contractor's registration shall conform strictly to the Metropolitan Electrical Code and applicable ordinances. Before any person, firm or corporation shall engage in the business of electrical contracting, equipment contracting or low-voltage contracting as herein defined, that person or entity shall comply with all other applicable ordinances of the Metropolitan Government of Nashville and Davidson County.

B. It shall be the responsibility of the electrical, equipment contractor or low-voltage contractor to install all work for which a permit is required in accordance with all requirements of the Metropolitan Electrical code and all other applicable ordinances of the metropolitan government.

C. No electrical work shall be begun until a permit has been obtained by the master electrician, equipment installer or low-voltage wiring installer.

D. 1. The electrical contractor, equipment contractor or low-voltage contractor shall register with the department of codes administration the following:

a. Name of the business, business street address, zip code, local telephone or toll-free number and individual's name, as required in subsection B of Section 6.20.130;

b. Name of the licensed master electrician, equipment installer or low-voltage wiring installer, business street address, zip code and local telephone number where the master electrician, equipment installer or low-voltage wiring installer may be contacted during normal working hours.

2. A copy of the above shall be kept at all times in the office of the department of codes administration.

E. 1. It shall be the responsibility of the electrical contractor, equipment contractor or low-voltage contractor to furnish to the department of codes administration a permit bond in the amount of forty thousand dollars, conditioned to conform to the requirements of this chapter and all applicable laws, ordinances, rules, and regulations of the metropolitan government relating to work which is performed by the principal pursuant to a permit issued under this bond, or for work performed by the principal for which a permit should have been obtained prior to the commencement of such activity; and to indemnify the metropolitan government and property owners against any and all loss suffered by them by reason of the failure of such contractor to comply with such laws, ordinances, rules and regulations. Such bond shall be continuous and may not be canceled without at least ten days' prior notice, in writing, to the director of codes administration. The liability of the surety shall continue to attach to work performed pursuant to any permit issued prior to the termination date of the bond, even if the noncomplying act should occur after the termination date of the bond. The liability of the surety for any and all claims, suits or actions under this bond shall not exceed the bond penalty of forty thousand dollars. Regardless of the number of years this bond may

remain in force, the liability of the surety shall not be cumulative and the aggregate liability of the surety for any and all claims, suits or actions under this bond shall not exceed forty thousand dollars. The bond shall be issued by a U.S. Treasury-listed corporate surety or a Tennessee domestic insurance company on forms provided by the department of codes administration.

2. The conformance bond shall be submitted with the required application for registration or within one hundred twenty days of the adoption of the ordinance codified herein for existing registered electrical contractors and existing registered electrical equipment contractors.

F. It shall be the responsibility of the electrical contractor, equipment contractor or low-voltage contractor to furnish to the department of codes administration a certificate of general liability insurance issued by a Tennessee-licensed company which provides a minimum of three hundred thousand dollars per occurrence with combined single limit bodily injury and property damage coverage. The certificate of insurance may not be canceled without at least thirty days' prior notice, in writing, to the director of codes administration. The certificate of insurance must be submitted with the required application for registration.

G. It shall be the responsibility of the electrical contractor, equipment contractor or low-voltage contractor to furnish to the department of codes administration proof that all required privilege licenses have been obtained.

H. An electrical contractor, equipment contractor or low-voltage contractor shall not furnish permits for electrical work to any person, firm or corporation other than his/her own. All work done under any permit shall be performed under the supervision of the licensed master electrician, equipment installer or low-voltage wiring installer who obtained the permit. Work for which the permit is required cannot be subcontracted under any condition to other than a registered electrical contractor, equipment contractor or low-voltage contractor, who shall obtain his/her own permit.

I. 1. It shall be the responsibility of the electrical contractor, equipment contractor or low-voltage contractor to promptly notify in writing any other electrical contractor, equipment contractor or low-voltage contractor who proposes to hire or engage him/her to perform any work for which an electrical permit is required of the following:

a. All parties who contract to perform work for which an electrical permit is required must be registered electrical contractors, equipment contractors or low-voltage wiring contractors;

b. All parties who contract to perform work for which an electrical permit is required must employ the full-time services of a licensed master electrician, equipment contractor or low-voltage wiring installer.

2. A copy of the written notification shall be provided to the department of codes administration upon written request from the department of codes administration.

J. Each electrical contractor, equipment contractor or low-voltage contractor shall promptly notify in writing the party with whom he/she has contracted for electrical work of any known defects in electrical plans or specifications prepared by others.

K. Each electrical contractor, equipment contractor or low-voltage contractor shall maintain for a period of two years a file of all deficiencies in work, as identified to him/her in writing by representatives of the department of codes administration or by the master electrician, equipment installer or low-voltage wiring installer. It shall be the responsibility of the electrical contractor, equipment contractor or low-voltage contractor to assist the master electrician, equipment installer or low-voltage wiring installer in promptly correcting all deficiencies in work.

L. Each electrical contractor, equipment contractor or low-voltage contractor shall instruct all of his/her employees to immediately identify themselves and produce proper identification when requested by representatives of the department of codes administration. Failure of persons performing electrical work to identify themselves upon request shall be cause for placing a stop work order on the project.

M. It shall be the responsibility of the electrical contractor, equipment contractor or low-voltage contractor to produce payroll and other records when requested in writing by the metropolitan board of electrical examiners and appeals. Such records shall show the names of the individuals and the calendar dates when work was performed on all projects for which a permit is required.

N. All vehicles utilized by a metropolitan electrical contractor, equipment contractor or low-voltage contractor and/or the employees thereof shall have conspicuously painted on the sides of such vehicles in a contrasting color the following information:

1. The full name of the firm to which the vehicle belongs, in lettering of at least three inches;

2. The registration number of the metropolitan electrical contractor, equipment contractor or low-voltage contractor, in lettering of at least two inches;

3. The wording "Nashville, Tennessee" in lettering of at least two inches.

O. In the event vehicles are leased by a metropolitan electrical contractor, equipment contractor or low-voltage contractor, such leased vehicle, in lieu of the painting thereon of the information required by subsection N of this section, may be equipped with securely attached temporary signs placed on both sides thereof which comply with the requirements of subsection N above.

P. Failure to comply with any of the duties listed above shall constitute grounds for suspension or revocation of the electrical contractor's registration, equipment contractor's registration or low-voltage contractor's registration. (Ord. 94-1226 § 1, 1994; Ord. 91-1558 § 22, 1991; prior code § 14-1-74)

6.20.160 Change of status notification required—Failure to employ authorized contractors unlawful.

A. It shall be the responsibility of the electrical contractor, equipment contractor or low-voltage contractor to notify immediately, in writing, the metropolitan board of electrical examiners and appeals of the termination of employment, for whatever reason, of the master electrician, equipment installer or low-voltage wiring installer or of any other change in the names, addresses or telephone numbers required in subsections B, C and G of Section 6.20.130, and subsection D of Section 6.20.150.

B. In the event of termination of employment or revocation of the license of the master electrician, equipment installer or low-voltage wiring installer, the electrical contractor, equipment contractor or low-voltage contractor shall secure the full-time services of another master electrician, equipment installer or low-voltage wiring installer within thirty days. If the full-time services of another master electrician, equipment installer or low-voltage wiring installer are not obtained within thirty days, the electrical contractor's registration, equipment contractor's registration or low-voltage contractor's registration shall be suspended until a new master electrician, equipment installer or low-voltage wiring installer is employed, subject to an appeal before the metropolitan board of electrical examiners and appeals. (Ord. 91-1558 § 23, 1991; prior code § 14-1-75)

6.20.170 Work stoppage order.

A. In the event an electrical contractor, as defined in subsection B of Section 6.20.130, ceases to employ the services of a master electrician, the director of codes administration shall notify such electrical contractor that he shall no longer be entitled to secure permits and that any work authorized and not completed, under any permit issued to such contractor, shall be stopped within forty-eight hours after notice, subject to an appeal by such contractor to the metropolitan board of electrical examiners and appeals with the forty-eight-hour period, excluding Saturdays, Sundays and legal holidays falling within the forty-eight-hour period.

B. Such notice, by the director, shall be in writing and shall be delivered to the electrical contractor by certified mail, or served personally on such contractor. (Ord. 91-1558 § 2 (part), 1991; prior code § 14-1-76)

6.20.180 Appeal from work stoppage order.

Upon written notice of an appeal to the board of electrical examiners and appeals, involving a work stoppage under the circumstances as set forth in Section 6.20.170, the board shall meet in special session and shall take such action as may be deemed necessary to assure that the intent and purposes of this chapter and Chapters 2.76, 6.40 and 16.20 are complied therewith. In each such instance, the action of the board shall be final, subject to such relief as the aggrieved party may have at law or in equity. (Prior code § 14-1-77)

Article III. Equipment Installers

6.20.200 Equipment installer defined.

A. For the purposes of this chapter and Chapters 2.76, 6.40 and 16.20, an "equipment installer" means any person who installs and services utilization equipment, other than industrial, normally built in standard sized sizes or types, which is installed or connected as a unit to perform one or more functions including, but not limited to, clothes drying, air conditioning, heating and electric signs.

B. For the purpose of this chapter and Chapters 2.76, 6.40 and 16.20, an "equipment installer" means any person who engages in the business of contracting for the sale, installation and service of utilization equipment as defined in subsection A of this section. (Prior code § 14-1-79)

6.20.210 Registration required.

It shall be the duty of every person who shall make contracts for the installation, repair, addition or alteration of any electrical appliance or equipment, for which a permit is required, to register with the department of codes administration, on forms provided by the director of codes administration, providing the business address of the person, the effective date of the conformance bond, the expiration dates of all required privilege licenses and signatures of all persons authorized to make application for permits for such person. (Prior code § 14-1-80)

6.20.220 Licensure requirements.

A. In order to comply with the requirements of this chapter for licensure, an equipment installer shall successfully complete a written examination, administered by the metropolitan board of electrical examiners and appeals, designed to test the applicant's ability and knowledge in his/her field of equipment installation. The board shall certify the results of the applicant's competency to the director of the department of codes administration. Such examination shall be prerequisite to licensure as an equipment installer.

B. Every person who, on June 4, 1991, the date of the adoption of the ordinance codified herein, is certified as an equipment installer, shall be licensed as an equipment installer under the provisions of this chapter. (Ord. 91-1558 § 25, 1991; prior code § 14-1-81)

6.20.240 Permitted activities and duties.

For the purpose of this chapter, an equipment installer's license shall convey the privilege of installing equipment and the electrical wiring of equipment, according to the following requirements:

A. HVAC Units, Equipment and Appliances.

1. All HVAC units must be installed and wired in accordance with Articles 42, 424, 430, 440 and 200 through 250 of the National Electrical code, and all other applicable chapters of that code. The equipment installer under this section shall be permitted to install and connect the electrical wiring from the last disconnecting means provided by an electrical contractor.

2. In conjunction with this section, an equipment installer shall be permitted to install branch circuit wiring for the following:

a. The illumination for all working spaces where equipment must be serviced;

b. One hundred twenty-five volt, single-phase fifteen or twenty ampere-rated receptacle outlet at an accessible location for the servicing of rooftop-mounted heating or air-conditioning equipment;

c. The one hundred twenty-five volt receptacle outlet for the condensate pump on air-conditioning equipment;

d. The one hundred twenty-five volt, twenty-ampere single-pole toggle switch for disconnecting the electrical power to a gas furnace.

B. Swimming Pools and Swimming Pool Equipment.

1. All swimming pool wiring and the installation of swimming pool equipment shall comply with Article 680 of the National Electrical Code.

2. A licensed equipment installer for swimming pool wiring and equipment shall be permitted to install all grounding and bonding of a swimming pool and equipment in accordance with Article 680 of the National Electrical Code.

3. A licensed equipment installer shall be permitted to install and connect the electrical wiring to the swimming pool equipment from the last disconnecting means provided by an electrical contractors.

C. Electric Signs.

1. All electric sign installations and wiring shall be installed in accordance with Article 600 of the National Electrical Code.

2. Each equipment installer for electric signs shall be permitted to install the sign and connect the electrical wiring from the last disconnecting means provided by an electrical contractor.

D. Gasoline Dispensing Units.

1. All gasoline dispensing units must be installed and wired in accordance with Article 514 of the National Electrical Code.

2. An equipment installer for gasoline dispensing units shall be permitted to install the equipment and connect the electrical wiring from the last disconnecting means provided by an electrical contractor.

E. Installation of Other Electrical Equipment. Equipment installers shall install equipment only in accordance with the National Electrical Code and the Metropolitan Electrical Code. No equipment installer is permitted to install the main source of power to any type of equipment or installation, as defined in this article. The main source of power for any type of equipment from any electrical source must be installed by an electrical contractor. (Ord. 91-1558 § 27, 1991; prior code § 14-1-83)

Article IV. Master Electricians, Electrical Equipment Installers, Low-Voltage Wiring Installers, Metropolitan Journeyman Electricians, Metropolitan Apprentice Electricians, and Metropolitan Beginning Electricians*

6.20.250 Requirements for license.

An applicant for a license as a master electrician, electrical equipment installer, low-voltage wiring installer, metropolitan journeyman electrician, metropoli-

*__Editor's note—__Ord. BL2013-570, § 1, passed Nov. 19, 2013, repealed the former Art. IV, §§ 6.20.250—6.20.280, and enacted a new Art. IV as set out herein. The former Art. IV pertained to master electricians, equipment installers and low-voltage wiring installers and derived from Code §§ 14-1-84—14-1-94; Ord. 91-1558 § 28, 1991.

tan apprentice electrician, and metropolitan beginning electrician must meet the following requirements for licensure:

A. Education/Experience.

1. Master Electrician.

(a) The applicant must be a graduate electrical engineer from an accredited university or college with at least two years' actual experience in the electrical construction industry; or

(b) The applicant must have at least six years of working experience in the electrical construction industry covering the actual installation of electrical work.

2. Electrical Equipment Installer. The applicant must have at least three years of working experience in the industry covering the actual installation of equipment.

3. Low-Voltage Wiring Installer. The applicant must have at least three years of working experience in the industry covering the actual installation of equipment. Schooling may be substituted for up to a maximum of two years of experience as long as the schooling is directly connected with the type of equipment being installed.

4. Metropolitan Journeyman Electrician.

(a) The applicant must have successfully completed an apprenticeship program registered with the U.S. Department of Labor, Bureau of Apprenticeship and Training in accordance with the requirements of 29 C.F.R. § 29, or any nationally accredited apprenticeship program in the electrical construction industry.

(b) The applicant must have at least five years' experience in the electrical construction industry and performing electrical installation work.

5. Metropolitan Apprentice Electrician.

(a) The applicant must be enrolled in an apprenticeship program registered with the U.S. Department of Labor, Bureau of Apprenticeship and Training in accordance with the requirements of 29 C.F.R. § 29, or any nationally accredited apprenticeship program.

(b) The applicant is not required to have any electrical construction experience prior to enrolling in an approved apprentice program.

6. Metropolitan Beginning Electrician.

(a) The applicant must be enrolled in an approved apprentice program after being employed for a period of one year as a beginning electrician.

(b) The applicant is not required to have any prior electrical construction or classroom experience prior to enrolling in the approved apprentice program.

7. Evidence of Experience. All applicants must provide satisfactory evidence of the required years of experience, and such evidence must be approved by the metropolitan board of electrical examiners and appeals.

B. Examination. Applicants shall be examined by written examination by the metropolitan board of electrical examiners and appeals. A grade of seventy shall be required for the issuance of a license.

C. Existing "Certified" Electrical Contractors. Every person who, on June 4, 1991, held a valid "certified" electrical contractor's certificate, shall be licensed as a master electrician under the provisions of this chapter. (Ord. BL2013-570 § 1, 2013)

6.20.260 Duties.

A. It shall be the duty of the master electrician, equipment installer or low-voltage wiring installer to insure that the electrical work for which he/she obtains permits is installed in accordance with all requirements of the Metropolitan Electrical Code and all other applicable ordinances. The master electrician, equipment installer or low-voltage wiring installer shall accordingly personally supervise, on a routine basis, the work being performed under a permit and shall verify that work has been done in accordance with applicable codes and ordinances before an inspection is requested.

B. No electrical work shall be begun until a permit has been obtained by the master electrician, equipment installer or low-voltage wiring installer.

C. It shall be the responsibility of the master electrician, equipment installer or low-voltage wiring installer to review the electrical plans and specifications on all work for which a permit is required. The master electrician, equipment installer or low-voltage wiring installer shall promptly notify the electrical contractor, equipment contractor or low-voltage contractor in writing of any known defects in electrical plans or specifications.

D. The master electrician, equipment installer or low-voltage wiring installer shall be responsible for requesting and securing inspections for all work for which a permit was obtained under his/her license.

E. The master electrician, equipment installer or low-voltage wiring installer shall meet with the metropolitan electrical inspector and others, when requested, at the job site.

F. The master electrician, equipment installer or low-voltage wiring installer shall promptly notify the electrical contractor, equipment contractor or low-voltage contractor in writing of any deficiencies in the work as identified to him/her in writing by a metropolitan electrical inspector. It shall be the responsibility of the master electrician, equipment installer or low-voltage wiring installer to promptly correct such deficiencies in the work.

G. A master electrician, equipment installer or low-voltage wiring installer shall not furnish permits for electrical work to any person, firm or corporation other than the electrical contractor, equipment contractor or low-voltage contractor with whom his/her license is registered.

Failure to comply with any of the duties listed above shall constitute grounds for restriction, suspension or revocation of the master electrician's, equipment installer's or low-voltage wiring installer's license. (Ord. BL2013-570 § 1, 2013)

6.20.270 Active registration required.

A. It shall be the duty of every person licensed as a master electrician, equipment installer or low-voltage wiring installer to register with the department of codes administration the name of the electrical contractor, equipment contractor or low-voltage contractor for whom he/she will obtain permits. No person shall work as a master electrician, equipment installer or low-voltage wiring installer prior to such registration.

B. The master electrician, equipment installer or low-voltage wiring installer shall state, in his/her application, any employer for whom he/she is currently working, in any capacity. It shall be the duty of the master electrician, equipment installer or low-voltage wiring installer to keep this statement of employment current at all times. (Ord. BL2013-570 § 1, 2013)

6.20.280 Licenses placed on inactive status—Reactivation.

A. A master electrician, equipment installer or low-voltage wiring installer may apply to the department of codes administration to place his/her license on an inactive status.

B. The license shall not become inactive until all work under permits obtained by the license holder has been satisfactorily completed or until all permits have been canceled.

C. Inactive licenses may be renewed by submitting an application to the department of codes administration. After a waiting period of ninety days from the date the application was accepted by the department of codes administration, his/her certificate shall be reactivated upon payment of current fees. (Ord. BL2013-570 § 1, 2013)

6.20.290—6.20.350 Reserved.

Article V. Maintenance Electrician

6.20.360 Limitation on work—Penalties for violations.

A. No electrical work for which a permit is required may be performed by a maintenance electrician. It shall be a misdemeanor for a maintenance electrician to perform electrical work for which a permit is required.

B. It shall be a misdemeanor for any person to order or otherwise direct a maintenance electrician to perform electrical work for which a permit is required. (Ord. 91-1558 § 29, 1991; prior code § 14-1-95)

Chapter 6.24

FILMS AND LIVE ENTERTAINMENT

Sections:

6.24.010 Safety rules and conditions.

6.24.010 Safety rules and conditions.

All business establishments showing films or staging and showing live entertainment to patrons on an individual booth-by-booth, or individual room-by-room, basis shall be subject to the following:

A. All walls, partitions and doors shall be of either noncombustible material or material of not less than one hour fire-resistant time rating.

B. All furniture, furnishings, rugs and carpets shall be of a fabric or material with a flame spread rating of seventy-five or less, according to the ASTME 84 Test.

C. Each room or booth shall have not less than thirty square feet of floor area for each occupant.

D. All aisles shall not be less than fifty inches in width, and no such aisle shall have a dead end.

E. Each room or booth shall have at least two lighted exits within the constant and unobstructed view of the occupant or occupants, which exits shall lead directly to the outside of such business establishment.

F. There shall be no locks on doors in rooms or booths which could prevent a person from entering or leaving such room or booth.

G. All electrical equipment shall be grounded and no electrical receptacles or outlets shall be serviced by extension cords.

H. The light level throughout each booth, room and aisle shall not be less than 1.0 footcandle measured at the floor level. Such lights shall be placed not less than three feet above the floor level. (Prior code § 7-1-9)

Chapter 6.26

FRANCHISES FOR FIBER OPTIC COMMUNICATIONS SERVICES

Sections:

6.26.010	**Declaration of need.**
6.26.020	**Definitions.**
6.26.030	**Grant of franchise.**
6.26.040	**Construction.**
6.26.050	**As built drawings.**
6.26.060	**Construction standards.**
6.26.070	**Suspension or revocation of construction permit.**
6.26.080	**Adjustment of utility facilities.**
6.26.090	**Adjoining property owners.**
6.26.100	**Emergency or disaster.**
6.26.110	**Moving wires.**
6.26.120	**Temporary removal of facilities for demolition of buildings.**
6.26.130	**Joint use.**
6.26.140	**Removal of city property.**
6.26.150	**Reservation of rights.**
6.26.160	**Protection of trees.**
6.26.170	**Abandonment of right-of-way.**
6.26.180	**Rights of abutting landowners.**
6.26.190	**Relocation of the system.**
6.26.200	**Bonds.**
6.26.210	**Insurance requirements.**
6.26.220	**Indemnification.**
6.26.230	**Services to the metropolitan government.**
6.26.240	**Compensation to the metropolitan government.**
6.26.250	**Accounts, records and reports.**
6.26.260	**Term of franchise.**
6.26.270	**Extension of term.**
6.26.280	**Renewal.**
6.26.290	**Assignment or lease of franchise.**
6.26.300	**Violations.**
6.26.310	**Revocation and termination.**
6.26.320	**Service standards.**
6.26.330	**Preferential or discriminatory practices prohibited.**
6.26.340	**Conflict with other laws.**
6.26.350	**Compliance with applicable laws and ordinances.**
6.26.360	**Tennessee law governs.**
6.26.370	**Metropolitan government taking part in litigation.**
6.26.380	**Office location.**
6.26.390	**Severability.**

6.26.010 Declaration of need.

That the metropolitan council finds and declares that, within Metropolitan Nashville and Davidson County, the public necessity requires the development of competing telephone service in the form of fiber optic communications capability, and that numerous private companies are currently able and willing to provide such service. (Ord. 94-1103 § 1, 1994)

6.26.020 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Anniversary date" means the date on which a franchise agreement is fully executed.

"Compensation year" means each calendar year during the term of a franchise agreement in which compensation is paid to the metropolitan government.

"Council" or "metropolitan council" means the council of the Metropolitan Government of Nashville and Davidson County.

"Day" or "days" means a calendar day or days.

"Director of finance" means the position of director of finance created by Section 8.102 of the Metropolitan Charter or a successor position, or an acting director of finance, or the designee of the director of finance.

"Director of information systems" means the position of information systems director created under Section 2.24.115 of the Metropolitan Code or a successor position, or an acting information systems director, or the designee of the information systems director.

"Director of public works" means the position of director of public works created by Sections 8.404 and 8.405 of the Metropolitan Charter or a successor position, or an acting director of public works or the designee of the director of public works.

"FCC" means the Federal Communications Commission, or any successor agency.

"Fiber optic communications" or "fiber optic services" means telecommunication systems as defined in "system" or "telecommunication system" found in this section.

"Franchise" means the nonexclusive authorization granted as provided in this chapter to occupy or use the streets and/or public rights-of-way within Metropolitan Nashville and Davidson County for the construction, operation and maintenance of a fiber optic telecommunications system within all or a portion of Metropolitan Nashville and Davidson County.

"Franchise agreement" means a fully executed and notarized contractual agreement by and between the metropolitan government and grantee, wherein grantee accepts the provisions stated in this chapter.

"Grantee" means any company providing access or local telecommunications service using facilities either constructed, owned or leased for the purpose of providing voice, data or video telecommunication service.

"Gross revenue" means all receipts collected by the grantee for all communications and related operations and services within the corporate limits of the metropolitan government, as well as any other revenue arising from operation or possession of this franchise. By way of example, but without limitation, "gross revenue" includes installation charges, access charges paid to the grantee by other carriers, franchise fees and occupation taxes surcharged to customer, and the lease or resale of lines or circuit paths to third parties. "Gross revenue" does not include revenue uncollectible from customers.

"Metropolitan government" means the Metropolitan Government of Nashville and Davidson County.

"PSC" means the Tennessee Public Service Commission or any successor agency.

"Public right-of-way" means real property subsurface and air rights acquired by the metropolitan government by any lawful means and includes the surface and that area below the surface which is necessary to support the public street, alley, path, bridge, tunnel, sidewalk, planting strip, median, waterway, dock, wharf, pier, public ground or other public right-of-way. Public right-of-way also includes the surface of any public street, alley, path, bridge, tunnel, sidewalk, planting strip, median, waterway, dock, wharf, pier, public ground or other public right-of-way acquired by the metropolitan government. No reference herein or in any franchise for use of any public right-of-way shall be deemed to be a representation or guarantee by the metropolitan government that its title to any public right-of-way or any improvement or object located therein is sufficient to permit or authorize its use by the grantee.

"System" or "telecommunications system" means grantee's network of cables, wires, lines, towers, wave guides, optic fiber, microwave, and any associated converters, equipment, or facilities designed and constructed for the purpose of producing, receiving, amplifying or distributing audio, video or other forms of electronic signals to or from subscribers or locations within Metropolitan Nashville and Davidson County, but not including the offering to the public cable television services as defined under the Cable Communications Act of 1984, as amended by the Cable Television Consumer Protection and Competition Act of 1992, and/or any franchise granted by the metropolitan government pursuant to said Act.

"Urban forester" means the position of urban forester created by ordinance of the metropolitan council, or any successor, or an acting urban forester or the designee of the urban forester. (Amdt. 1(1), (2), (3) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 2, 1994)

6.26.030 Grant of franchise.

A. The metropolitan government warrants that it has the right to issue a nonexclusive, revocable franchise to a grantee to have, acquire, construct, expand, reconstruct, maintain, use and operate in, along, across, on, over, through, above and under the public streets, alleys and rights-of-way of the city, a fiber optics telecommunications system (the "system"). Any grantee of such franchise agrees that it shall not now or at any time after a franchise is granted challenge this right in any way or in any metropolitan, state or federal court; provided, that in the event the federal or state government acquires or assumes exclusive jurisdiction over the issuance or regulation of fiber optic telecommunications franchises, grantee agrees that a franchise issued pursuant to the provisions herein shall remain in full force and effect as a binding contract between the grantee and the metropolitan government to the extent permitted by law.

B. Application for franchise.

1. Any franchise application shall be made to the council through the metropolitan clerk and introduced in the council in the manner provided by the rules of the council.

2. Each such application shall be kept on file with the metropolitan clerk. Any intentional misrepresentation in such application shall be grounds for the rejection of the franchise. The application shall be a part of any franchise grant or agreement under this chapter.

3. Each application shall include a map and description of the proposed service area for the grantee.

4. The mandatory referral to the metropolitan planning commission required by Section 11.505 of the Metropolitan Charter shall apply to each franchise application.

5. No ordinance granting a franchise shall be passed by the council without first receiving from the applicant a detailed report, certified under oath, establishing that the applicant possesses the necessary legal, character, financial, technical and other qualifications to construct and achieve full activation of its system, and to perform its obligations and faithfully adhere to all requirements of the franchise ordinance codified in this chapter, and that its construction arrangements are adequate and feasible. A member of council shall have the authority to file a resolution calling for a full public proceeding, affording due process, to review and approve the grantee's legal, character, financial, technical and other qualifications, and the adequacy and feasibility of its construction arrangements. If the majority votes in favor of the resolution, the full public proceeding it calls for shall be

conducted either by the full council or a committee composed of members of the council only. If any material representation of the certified report is determined to be false, this shall be grounds for revocation of a franchise granted under this chapter, in addition to the grounds itemized in Section 6.26.310 of the Metropolitan Code. No franchise shall be revoked, for this or any other reason, without a full public proceeding, affording due process, to be conducted either by the full council or a committee composed of members of the council only. Prior to such a revocation proceeding, the processes described in Section 6.26.300 of the Metropolitan Code shall be followed.

C. Franchise—Grant Conditions, Terms.

1. All franchises, and all renewals, extensions and amendments thereof shall be granted only by ordinance. No such ordinance shall be adopted before the application therefor has been filed with the council through the metropolitan clerk.

2. Grantee shall not provide cable services or operate a cable system as defined in the Cable Television Consumer Protection and Competition Act of 1992 (47 U.S.C.A. § 521, et seq., as amended) or as recognized by the Federal Communications Commission (the FCC) without first obtaining a separate cable franchise from the metropolitan government and shall not allow the use of the system by a cable system that has not been granted a franchise to operate a cable communications system by the metropolitan government. Nor shall any provider of cable services or grantee of a cable television franchise operate or provide a telecommunications service or facilities except pursuant to the ordinance codified in this chapter.

3. Grantee shall not provide services directly regulated by the Tennessee Public Services Commission (the PSC) under the laws of Tennessee unless duly authorized by the PSC.

4. Franchises granted pursuant to this chapter do not require grantee to provide ubiquitous service throughout Davidson County as a public service provided.

5. Franchises shall be evidenced by a contract adopted by the metropolitan council, which contract shall be submitted to the mayor in the manner provided for in the Charter of the Metropolitan Government presently in effect or hereafter adopted. (Ord. BL2016-310 § 1, 2016; Amdt. 1(4), (5), (6) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 3, 1994)

6.26.040 Construction.

A. Licenses and permits. The grantee shall have the sole responsibility for diligently obtaining, at its own cost and expense, all permits, licenses, or other forms of approval or authorization necessary to construct, operate, maintain or repair the system, and to construct, maintain and repair any part thereof prior to commencement of any such activity.

Issuance of a permit by any agency of the metropolitan government as to the construction and installation of any portion of grantee's system does not waive other applicable requirements of federal or Tennessee law, and grantee shall comply with such other requirements.

B. Subject to Police Power. The construction, expansion, reconstruction, excavation, use, maintenance and operation of the system shall be subject to all lawful police regulations of the metropolitan government and performed in accordance with all laws and regulations of the metropolitan government for utility location and excavation in public rights-of-way presently in effect or hereafter adopted. In addition to the duty under any other law or regulation of the metropolitan government, not less than seven days prior to filing of a request for a construction permit, grantee shall provide to the director of public works a copy of all the construction work plans and drawings for the system, or any segment or expansion thereof. Grantee shall not proceed with construction until the plans and drawings have been approved in writing by the above-listed metropolitan government official. (Ord. 94-1103 § 4, 1994)

6.26.050 As built drawings.

Grantee shall submit to the director of public works "as built" drawings of the portions of grantee's system located along the public right-of-way of a size and material satisfactory to the director of public works within one hundred twenty days after completion of construction of such portions. Grantee shall update such drawings within sixty days whenever material changes are made to grantee's system which impact the public right-of-way. Said drawings, set forth by utility quarter sections, shall at a minimum include cable routings and the location of amplifiers, power supplies and system monitor test points. (Amdt. 1(7) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 5, 1994)

6.26.060 Construction standards.

A. All work done in connection with the construction, expansion, reconstruction, maintenance or repair of the system shall be subject to and governed by all laws, rules, and regulations of the metropolitan government in accordance with the provisions of Chapter 13.20 of the Metropolitan Code, except that the provisions of Section 13.20.050 shall not be applicable. Grantee shall excavate only for the construction, installation, expansion, repair, removal, and maintenance of all or a portion of its system.

All installations shall be underground in those areas of the metropolitan government where public utilities providing telephone and electric service are underground at the time of installation. In areas where either telephone or electric utility facilities are above ground at the time of installation, grantee may install its service above ground; provided, that at such time as those facilities are required to be placed underground by the metropolitan government, or are placed underground, grantee shall likewise place its services underground without additional cost to the metropolitan government.

B. Electrical standards. Grantee shall at all times comply fully with provisions of the electrical code of the metropolitan government and with Chapter 6.20 of the Metropolitan Code of Laws.

C. Interference With Persons, Improvements, Public and Private Property and Utilities. Grantee's system and facilities, including poles, lines, equipment and all appurtenances, shall be located, erected and maintained so that such facilities shall:

1. Not endanger or interfere with the health, safety or lives of persons;

2. Not interfere with any improvements the metropolitan government or state may deem proper to make;

3. Not interfere with the free and proper use of public streets, alleys, bridges, easements or other public ways, places or property, except to the minimum extent possible during actual construction or repair;

4. Not interfere with the rights and reasonable convenience of private property owners, except to the minimum extent possible during actual construction or repair; nor

5. Not obstruct, hinder or interfere with any gas, electric, water or telephone facilities or other utilities within the metropolitan government.

D. Protect Structures. In connection with the construction, operation, maintenance, repair or removal of the system, the grantee shall, at its own cost and expense, protect any and all existing structures and improvements, including landscaping and trees belonging to the metropolitan government, and all designated historical landmarks, as well as all other structures within any designated historical district. The grantee shall obtain the prior approval of the metropolitan government before altering or crossing any water main, sewerage or drainage system, or any other municipal, state or federally owned structure in the streets required because of the presence of the system in the streets. Any such alteration shall be made by the grantee at its sole cost and expense, and in a manner prescribed by the metropolitan government. The grantee shall be liable, at its own cost and expense, to replace or repair and restore to serviceable condition in a manner as may be specified by the metropolitan government, any street or any municipal, state or federally owned structure involved in the construction of the system that may become disturbed or damaged as a result of any work thereon by or on behalf of the grantee pursuant to its franchise.

E. Erection, Removal and Use of Poles. No poles shall be erected by grantee without prior approval of the metropolitan government with regard to location, height, types and any other pertinent aspect. Such pole or structures shall be removed or modified by grantee at its own expense whenever the metropolitan government determines that the public convenience would be enhanced thereby. Approval under this section shall require the written approval of the department of public works.

F. Upon request of the metropolitan government or other authority of competent jurisdiction, grantee shall remove and abate any portion of the system or any facility that is dangerous to life or property, and in case grantee, after notice, fails or refuses to act, the metropolitan government may remove or abate the same, at the sole cost and expense of grantee, all without compensation or liability for damages to grantee. (Ord. BL2016-236 § 1, 2016; Amdt. 1(8), (9) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 6, 1994)

6.26.070 Suspension or revocation of construction permit.

The director of public works may suspend or revoke any permit issued by the department of public works or take any action he deems necessary, including the stopping of work, should grantee violate the terms of said permit, until said violation has been corrected to said director's satisfaction. (Ord. 94-1103 § 7, 1994)

6.26.080 Adjustment of utility facilities.

In the event that the location of grantee's system will require an adjustment of the installation of existing public or private utility facilities, grantee must obtain written consent of the owner of such utility, including, where applicable, all relevant metropolitan government departments to such adjustment and make such arrangements for the payment or reimbursement of the cost of such adjustment as are satisfactory to the owner of such utility, including, where applicable, all relevant metropolitan government departments. No permit for construction will be issued until the director of the department of public works is satisfied that the requirements of this section have been satisfied. In no case shall grantee be entitled to perform such adjustment or disturb such utility facilities without the written consent of the owner of such utility. (Amdt. 1(10) to Ord. 94-1103, 7/19/94; Ord. 94/1103 § 8, 1994)

6.26.090 Adjoining property owners.

All of grantee's system shall be so installed and located so as to cause minimum interference with the rights and appearance and reasonable convenience of adjoining property owners and at all times shall be kept and maintained in a safe, adequate and substantial condition, and in good order and repair. Grantee shall at all times employ reasonable care, and shall install and maintain in use commonly accepted methods and devices for preventing failures and accidents which are likely to cause damage, injuries or nuisances to the public. (Ord. 94-1103 § 9, 1994)

6.26.100 Emergency or disaster.

In case of emergency or disaster, grantee shall, upon request of the metropolitan government, make available its facilities to the metropolitan government, without cost, for emergency use. (Ord. 94-1103 § 10, 1994)

6.26.110 Moving wires.

If determined to be necessary to promote the public health, welfare and safety, in case of fire, disaster or other

emergency, the metropolitan government may, in its reasonable discretion, take such action with respect to grantee's system in the streets or in metropolitan government buildings as it deems necessary to promote the public health, welfare and safety, in which event the metropolitan government shall not be liable therefor to the grantee. (Amdt. 1(11) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 11, 1994)

6.26.120 Temporary removal of facilities for demolition of buildings.

Upon the request of a person holding a permit issued by the metropolitan government for the moving or demolition of a building, and at least ten days' notice, grantee shall temporarily raise, lower or remove its facilities to permit the removal or demolition of such building. The expense of such temporary removal, raising or lowering of facilities shall be paid by the person requesting the same and grantee shall have the authority to require such payment in advance; provided, however, that no payment (direct or indirect) shall be required of the metropolitan government. (Ord. 94-1103 § 12, 1994)

6.26.130 Joint use.

Every public utility and every grantee may be required by the metropolitan government to permit joint use of its property and appurtenances located in the streets, alleys, and public places of the metropolitan government by other public utilities and grantees, in so far as such joint use may be reasonably practicable, and in accordance with the provisions of the National Electrical Safety Code upon payment of reasonable rental therefor; provided, that in the absence of agreement, upon application by any public utility or grantee, the council shall provide for arbitration of the terms and conditions of such joint use and the compensation to be paid therefor, which award shall be final. Grantee may require any such person or entity to furnish evidence of adequate insurance covering grantee and adequate bonds covering the performance of the person or entity attaching to grantee's facilities as a condition precedent to granting permission to any such person or entity to attach wires or equipment to grantee's facilities; provided, that grantee's requirements for such insurance shall be reasonable. (Amdt. 1(12) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 13, 1994)

6.26.140 Removal of city property.

No property of the metropolitan government is to be removed from the right-of-way, including signage on utility poles, without prior approval from the metropolitan government. (Ord. 94-1103 § 14, 1994)

6.26.150 Reservation of rights.

The metropolitan government reserves the right to exercise its police and/or proprietary powers to modify, vacate or transfer any right-of-way in use by grantee for a public purpose. At grantee's own risk, the metropolitan government has the predominant right to use its right-of-way in the placement, maintenance and repair of sewers, water mains and other public utilities or to relocate or remove grantee's system where the metropolitan government determines that the public convenience and/or necessity would be enhanced or for any other public purpose, including, but not limited to the use of any right-of-way used by grantee for public transportation purposes or where the director of public works determines there is an emergency. The permits referred to in Section 6.26.040 may be amended or revoked in whole or in part by the issuing department whenever such action is necessary or advisable for a public purpose. Grantee shall make no claims for costs or damages against the metropolitan government by reason of such removal or relocation. Upon thirty days' written notice to grantee of partial or complete revocation of such permit from the director of public works, grantee shall remove, modify, replace or relocate its facilities as required at its own expense. In the event grantee does not remove, modify, replace or relocate its facilities as required by said notice within thirty days as aforesaid, the director of public works may cause the same to be done at grantee's expense and all expenses incurred or damages paid by the metropolitan government on account of such action shall be paid by grantee on demand. Grantee shall remove, replace or modify, at its own expense, the installation of any of its facilities as may be deemed necessary by any other appropriate governmental authority to meet such authority's proper responsibilities. In the event the metropolitan government exercises its predominant right to use any right-of-way used by grantee for a public purpose, the metropolitan government shall reasonably cooperate with grantee in finding an alternate site for any telecommunications facilities removed and in avoiding disruption to grantee's telecommunications system to the extent not reasonably required by the metropolitan government. In an emergency, as determined by the director of public works, the metropolitan government may order grantee to remove or relocate its facilities within forty-eight hours. If the metropolitan government exercises any of its rights pursuant to this section, grantee shall have the option, upon notice to the director of information services, of abandoning the portion of its telecommunications system to be so removed or relocated and deleting such portion from the public right-of-way. (Amdt. 1(13) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 15, 1994)

6.26.160 Protection of trees.

Trimming of trees and shrubbery within the public right-of-way to prevent contact with grantee's facilities shall be done only in accordance with the standards approved by the urban forester in accordance with the ordinances of the metropolitan government. Removal or pruning of any tree or shrub shall only be done upon issuance of a permit by the urban forester. When trees or shrubs in the public right-of-way are damaged as a result of work undertaken by or on behalf of grantee, grantee shall pay the metropolitan government within thirty days of submission of a statement by the metropolitan government, the cost of any treatment required to preserve the tree or shrub and/or cost for removal and replacement of the tree or shrub with landscaping of equal value and/or the value of the tree or shrub prior to the damage or removal, as determined by the urban forester or other authorized agent of the metropolitan government. (Ord. 94-1103 § 16, 1994)

6.26.170 Abandonment of right-of-way.

In the event that the metropolitan government shall close or abandon any public street, alley or right-of-way, which contains any portion of grantee's system, any conveyance of land contained in such closed or abandoned public street, alley, highway or right-of-way shall be subject to the rights herein granted. (Ord. 94-1103 § 17, 1994)

6.26.180 Rights of abutting landowners.

In the event that the metropolitan government authorizes abutting landowners to occupy space under the surface of any public street, alley or right-of-way, such grant to an abutting landowner shall be subject to the rights herein granted to grantee. (Ord. 94-1103 § 18, 1994)

6.26.190 Relocation of the system.

A. New Grades or Lines. If the grades or lines of any street on which grantee's system is placed are changed at any time during the term of the franchise, then the grantee shall, at its own cost and expense and upon the request of the metropolitan government, protect or promptly alter or relocate the system, or any part thereof, so as to conform with such new grades or lines. In the event that the grantee refuses or neglects to so protect, alter, or relocate all or part of the system, the metropolitan government shall have the right to break through, remove, alter or relocate such part of the system, without any liability to the metropolitan government, and the grantee shall pay to the metropolitan government the costs incurred in connection with such breaking through, removal, alteration or relocation.

B. Relocation of Right-of-Way. Wherever a public right-of-way or other public property is being constructed, paved (whether or not such paving is part of a more extensive improvement project), resurfaced, relocated or otherwise altered or improved (including, but not limited to, the installation of sidewalk, curb, gutter, drainage facilities, water mains, or sewer mains, traffic signals or trees), grantee shall, within ninety days of written notice from the director of public works, and at no cost (direct or indirect) to the metropolitan government, remove or relocate any grantee facility located within such public right-of-way or public property or perform such work as it deems necessary for the extension of new facilities. In the event the grantee fails to relocate its property in a manner approved by the metropolitan government within ninety days of the metropolitan government's written notice, absent an extension of time granted by the metropolitan government, the metropolitan government may seek revocation of the franchise agreement pursuant to Section 6.26.310 of this chapter. Failure to obtain the metropolitan government's approval of the location of facilities relocated under this section will be considered a forfeiture under Section 6.26.310 of this chapter. Grantee shall be responsible for any damage it causes to property, including damage to trees and other landscaping, as a result of the relocation or removal of facilities.

C. Time Limit—Liquidated Damages. Failure of grantee to remove or relocate the facility to a location approved by the metropolitan government within ninety days of the metropolitan government's written notice shall entitle the metropolitan government to recover liquidated damages from grantee. The liquidated damages for failure to remove or relocate a facility shall be two hundred fifty dollars per diem.

If grantee believes it will be unable to complete the relocation within ninety days from receipt of notice from the metropolitan government, grantee shall explain the reasons for its inability in detail and the metropolitan government and grantee shall attempt to agree on an alternate schedule, subject, however, to the metropolitan government's right to finally determine the schedule and liquidated damages, as long as its decision is not unreasonable. (Amdt. 1(14) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 19, 1993)

6.26.200 Bonds.

A. Grantee shall obtain and maintain, at its sole cost and expense, and file with the metropolitan clerk, a corporate surety bond with a surety company authorized to do business in the State of Tennessee and found acceptable by the metropolitan attorney, in the amount of five hundred thousand dollars, both to guarantee the

timely construction and full activation of grantee's system, and to secure grantee's performance of its obligations and faithful adherence to all requirements of the franchise ordinance codified in this chapter. After the first five years of the initial term, bond requirement amount shall be reduced to two hundred fifty thousand dollars. Grantee shall provide this corporate surety bond at the time of execution of a franchise agreement, as required by Section 6.26.330 of this chapter.

B. The rights reserved to the metropolitan government with respect to the bond are in addition to all other rights of the metropolitan government, whether reserved by the franchise ordinance codified in this chapter or authorized by law; and no action, proceeding or exercise or a right with respect to such bond shall affect any other right the metropolitan government may have.

C. The bond shall contain the following endorsement; it is hereby understood and agreed that this bond may not be canceled by the surety nor any intention not to renew by exercised by the surety until sixty days after receipt by the metropolitan government, by registered mail, of written notice of such intent. (Ord. 94-1103 § 20, 1994)

6.26.210 Insurance requirements.

On or before the effective date of the franchise, grantee shall file with the metropolitan government a certificate of insurance and thereafter maintain in full force and effect at all times for the full term of the franchise, at the expense of grantee, a comprehensive general liability insurance policy, including underground property damage coverage, naming the metropolitan government as additional insured, written by a company authorized to do business in the State of Tennessee, protecting the metropolitan government against liability for loss or bodily injury and property damage occasioned by the installation, removal, maintenance, or operation of the communications system by grantee in the following minimum amounts:

A. One million dollars combined single limit, bodily injury and for real property damage in any one occurrence;

B. One million dollars aggregate.

Grantee shall also file with the metropolitan government a certificate of insurance for a comprehensive automobile liability insurance policy written by a company authorized to do business in the State of Tennessee, for all owned, nonowned, hired and leased vehicles operated by grantee, with limits no less than one million dollars each accident, single limit, bodily injury and property damage combined, or evidence of self-insurance.

Grantee shall also maintain, and by its acceptance of any franchise granted hereunder, and specifically agrees that it will maintain throughout the term of the franchise, workers compensation and employers liability, valid in the state, in the minimum amount of the statutory limit for workers compensation, and five hundred thousand dollars for employers liability.

All liability insurance required pursuant to this section shall be kept in full force and effect by grantee during the existence of the franchise and until after the removal of all poles, wires, cables, underground conduits, manholes and any other conductors and fixtures installed by grantee incident to the maintenance and operation of the communications system as defined in this chapter. All policies shall be endorsed to give the metropolitan government thirty days' written notice of the intent to amend or cancel by either grantee or the insuring company. (Ord. 94-1103 § 21, 1994)

6.26.220 Indemnification.

Grantee shall indemnify, defend and save whole and harmless the metropolitan government and all of its officers, agencies, and employees against and from any and all claims, suits, judgments, actions, losses, costs and expenses, including attorney's fees and costs or expenses incidental to the investigation and defense of claims and lawsuits brought for, on behalf of, or on account of any injuries or damages received or sustained by any person, firm or corporation or to any property, which may be occasioned by, or arising out of or from, the conduct of grantee in connection with the franchise ordinance codified in this chapter, the construction, reconstruction, expansion, removal, maintenance, operation, or repair of grantee's system, the conduct of grantee's business in Metropolitan Nashville and Davidson County pursuant to the franchise ordinance codified in this chapter, any occurrence in connection with the franchise ordinance codified in this chapter, any and all claims and lawsuits arising from any breach or default on the part of grantee in the performance of any term, condition, provision, covenant or agreement to be performed by grantee pursuant to the franchise ordinance codified in this chapter, any act or omission of grantee, or any of its agents, contractors, subcontractors, servants, employees or licensees, or any relationship between grantee and its end use customers and retailers whether caused by or attributable solely to grantee and others, or the metropolitan government, and grantee shall pay all judgments, with costs, counsel fees and expenses, which may be obtained against the metropolitan government related to any such claim. The metropolitan government agrees to give grantee prompt and reasonable notice of any claims or lawsuits; and grantee shall have the right to investi-

gate, compromise and defend same to the extent of its own interest. The above indemnification shall not apply to any judgment of liability resulting from the gross negligence or wilful misconduct of the metropolitan government. The terms and provisions contained in this section are intended to be for the benefit of the metropolitan government and grantee, and are not intended to be for the benefit of any third party. The metropolitan government shall have the right to participate or conduct the defense of its interests in any proceeding, and thereby assume risks and liabilities for its own acts or omissions. (Ord. 94-1103 § 22, 1994)

6.26.230 Services to the metropolitan government.

Grantee agrees to provide the metropolitan government with four dark fiber optic fibers within the backbone of grantee's system for use by the metropolitan government for municipal purposes only. Grantee also shall provide coordination and engineering assistance to the metropolitan government for providing such fiber optic accesses as the metropolitan government may require.

In order to ensure coordination of metropolitan government facilities with grantee's network, grantee agrees to:

A. Provide twenty-four hour per day continuous monitoring of grantee's system;

B. Coordinate, design and install network specific requirements of the metropolitan government, including maintenance, at grantee's cost, plus ten percent.

Grantee shall maintain with the metropolitan government a current listing of all buildings, both public and private, in which it provides services. No monthly fee shall be charged to the metropolitan government for this service.

Grantee shall comply with applicable requirements of regulatory agencies, with jurisdiction over ratemaking issues, which promote universal service. (Amdt. 1(15) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 23, 1994)

6.26.240 Compensation to the metropolitan government.

A. General Compensation. For the reason that the public streets, alleys and rights-of-way to be used by grantee in the operation of its system within the boundaries of the metropolitan government are valuable, public properties, acquired and maintained by the metropolitan government at great expense to its taxpayers, and that the grant to grantee of the use of said public streets, alleys and rights-of-way is a valuable property right, without which the grantee would be required to invest substantial capital in right-of-way costs and acquisitions, the grantee agrees to pay to the metropolitan government as general compensation during each year of the franchise ordinance codified in this chapter, an amount equal to five percent of gross revenues for each quarter of a compensation year. Grantee shall forward by check or money order an amount equal to the quarterly payment by the fifteenth day of the calendar month immediately following the close of the calendar quarter for which the payment is calculated. Any necessary prorations shall be made.

B. Recalculation At End of Compensation Year. At the end of each compensation year, grantee shall recalculate the total general compensation actually due. If additional amounts are due the metropolitan government by grantee, said amounts shall be paid by the fifteenth day of the second month of the compensation year following the compensation year during which such amounts were originally due. If amounts are found to be due the grantee by the metropolitan government, said amounts shall be credited by the fifteenth day of the second month of the compensation year, during which such amount were originally due. Any necessary prorations shall be made. The compensation set forth in this section shall be exclusive of and in addition to all special assessments and taxes of whatever nature, including, but not limited to, ad valorem taxes. In the event any quarterly payment is made after noon on the date due, grantee shall pay a late payment penalty of the greater of: (1) one hundred dollars or (2) simple interest at ten percent annual percentage rate of the total amount past due. As used in this section, gross revenues shall mean all revenues (exclusive of sales tax) collected by grantee from operation of grantee's system installed pursuant to the franchise ordinance codified in this chapter, and any related services provided by the grantee within Metropolitan Nashville and Davidson County, including, but not limited to:

1. All telecommunications service revenues charged on a flat-rate basis;

2. All telecommunications services charged on a usage-sensitive or mileage basis;

3. All revenues from installation service charges;

4. All revenues from connection or disconnection fees;

5. All revenues from penalties or charges to customers for checks returned from banks, net of bank costs paid;

6. All revenues from local services;

7. All revenues from authorized rental of conduit space;

8. All revenues from charges for access to local and long distance networks;

9. All revenues from authorized rentals of any portion of grantee's system, including plant, facilities, or capacity leased to others;

10. All other revenues collected from grantee's business pursued with the metropolitan government, excluding revenues received pursuant to Section 6.26.230(B) and, excluding third party billing arrangements not related to grantee's business;

11. Recoveries of bad debts previously written off and revenues from the sale or assignment of bad debts. Unrecovered bad debts charged off after diligent, unsuccessful efforts to collect are excludable from gross revenues; and

12. All revenues received from any subcontractor and/or subsidiary operating telecommunications services under or pursuant to grantee's franchise.

Gross revenues shall not include revenues from long distance operations other than revenues from local access connections.

Payment of money under this section shall not in any way limit or inhibit any of the privileges or rights of the metropolitan government, whether under the franchise ordinance codified in this chapter or otherwise.

Any transactions which have the effect of circumventing payment of required franchise fees and/or evasion of payment of franchise fees by noncollection or nonreporting of gross revenues, bartering, or any other means which evade the actual collection of revenues for business pursued by grantee are prohibited. (Amdt. 1(16), (17), (18), (19), (20), (21) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 24, 1994)

6.26.250 Accounts, records and reports.

A. Grantee shall keep the metropolitan government fully informed as to all matters in connection with or affecting the construction, reconstruction, removal, maintenance, operation and repair of grantee's system, grantee's accounting methods and procedures in connection therewith, and the recording and reporting by grantee of all revenues and uncollectibles.

B. Grantee shall keep complete and accurate books of account and records of its business and operations pursuant to the franchise ordinance codified in this chapter in accordance with generally accepted accounting principles, subject to approval by the metropolitan government. If required by the FCC, grantee shall use the system of accounts and the forms of books, accounts, records, and memoranda prescribed by the FCC in 47 CFR Part 32 or its successor and as may be further described herein. The metropolitan government may require the keeping of additional records or accounts which are reasonably necessary for purposes of identifying, accounting for, and reporting gross revenues and uncollectibles for purposes of Section 6.26.240 of this chapter. Grantee shall keep its books of account and records in such a way that breakdowns of revenues are available by type of service within the metropolitan government.

Grantee shall file annually with the director of finance and the metropolitan clerk, on a form approved by the metropolitan government, no later than ninety days after the end of the grantee's fiscal year, an audited statement of revenues (for that year) attributable to the operations of the grantee's system within Metropolitan Nashville and Davidson County pursuant to the franchise ordinance codified in this chapter. This statement shall present a detailed breakdown of gross revenues and uncollectible accounts for the year. This statement shall be audited by an independent certified public accountant whose report shall accompany the statement. The metropolitan government may, if it sees fit, have the books and records of grantee examined by a representative of said metropolitan government to ascertain the correctness of the reports agreed to be filed herein.

C. Grantee shall report to the metropolitan government such other information relating to grantee as the metropolitan government may consider useful and shall comply with the metropolitan government's determination of forms for reports, the time for reports, the frequency with which any reports are to be made, and if reports are to be made under oath.

D. Grantee shall provide the metropolitan government with access at reasonable times and for reasonable purposes, to examine, audit and review the papers, books, accounts, documents, maps, plans and other records of grantee pertaining to the franchise ordinance codified in this chapter. Grantee shall fully cooperate in making available its records and otherwise assisting in these activities.

E. The metropolitan government may, at any time, make inquiries pertaining to grantee's operation of its system within Metropolitan Nashville and Davidson County. Grantee shall respond to such inquiries on a timely basis.

F. Grantee shall provide the metropolitan government with notices of all petitions, applications, communications and reports submitted by grantee to the FCC, Securities and Exchange Commission and the Tennessee Public Service Commission or their successor agencies, relating to any matters affecting the use of public streets, alleys and public rights-of-way and/or the telecommunications operations authorized pursuant to the franchise ordinance codified in this chapter. Upon written request from the metropolitan government, grantee shall provide the metropolitan government with copies of all such

documentation. (Amdt. 1(22), (23) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 25, 1994)

6.26.260 Term of franchise.

A. Term. Upon execution of a franchise agreement between the metropolitan government and grantee, a franchise shall be in full force and effect for a term and period of fifteen years, ending on the anniversary date of the franchise.

B. Renegotiation At Five Years. The metropolitan government and grantee shall have the right to renegotiate in good faith, at the fifth and tenth anniversary dates of the franchise, the amount, nature and terms of compensation to be paid by grantee for use of the public rights-of-way during the term of this franchise. Any adjustment to compensation shall become effective on the next succeeding anniversary date. In order to renegotiate compensation, the metropolitan government, acting through its director of finance, shall give written notice to grantee at least sixty days prior to the fifth and tenth year anniversary dates. Said notice shall contain the franchise's proposed schedule of compensation. The terms of any such compensation shall be reflected in an amendment to this franchise and shall be nondiscriminatory and reasonable. No such amendment may take effect without the approval, by ordinance, of the metropolitan council.

C. Dispute Resolution. If grantee shall in good faith maintain that the amount, terms or nature of any adjustment to compensation proposed by the metropolitan government pursuant to Section 6.26.260(B) is excessive or unreasonable, given the value of the privileges granted under this chapter and grantee's franchise, grantee shall enter into good faith negotiations with the metropolitan government as expeditiously as possible to reach an agreement as to the adjustment to compensation prior to the five-year anniversary date. In the event that an agreement as to adjustment to compensation is not reached prior to such anniversary date, grantee shall have the right to make a demand for arbitration in writing to the director of information systems within thirty days after such anniversary date. In such event, the metropolitan government and grantee shall each appoint an arbitrator and a third arbitrator shall be appointed by the arbitrators so appointed. Each arbitrator shall have at least five years of experience in the field of rights-of-way procurement. Pursuant to the then current rules of the American Arbitration Association, or any successor organization, an arbitration shall be held as expeditiously as possible. (Amdt. 1(24) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 26, 1994)

6.26.270 Extension of term.

If, on the expiration date, grantee shall not be in default under the franchise, and if neither party has notified the other of its intent to terminate the franchise on or before the expiration date, then the terms of this franchise shall be deemed extended on an interim basis until terminated, renewed or renegotiated. Said interim extension period shall not extend beyond a date sixty days after the expiration date, after which date the franchise shall be considered terminated and all rights of the grantee to use the public rights-of-way to provide telecommunications services shall cease. (Ord. 94-1103 § 27, 1994)

6.26.280 Renewal.

At any time during the last year of the franchise, grantee may request the metropolitan government to enter into negotiations toward renewing or extending this franchise. The exercise by grantee of this option shall not bind the metropolitan government as to acceptance of any particular terms or renewal of the rights granted by the franchise. Any proposed renewal, extension or modification of the franchise is subject to the council's approval, modifications or rejection in its sole discretion.

Upon expiration of the fifteenth year of the franchise, the metropolitan government shall have the right, at its election, to:

A. Renew or extend the franchise for an additional period, as agreed by the metropolitan government and grantee;

B. Invite additional franchise applications or proposals; or

C. Terminate the franchise without further action.

The grantee shall provide notice to any party to any contract entered into by it that the metropolitan government shall have the right to exercise these options. (Amdt. 1(25) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 28, 1994)

6.26.290 Assignment or lease of franchise.

Neither the franchise, the assets held by grantee under the franchise ordinance codified in this chapter, nor any rights or privileges of grantee under the franchise ordinance codified in this chapter, grantee's system capacity, or allowance of access to grantee's system, either separately or collectively, shall be sold, resold, assigned, transferred or conveyed by grantee to any other person, firm, corporation, affiliate or entity, without the written consent of the metropolitan government by ordinance of the council, which permission shall not be unreasonably withheld. In the event that the purchaser is the holder of a like franchise, the franchise purchased shall be canceled and merged into the franchise held by the purchaser

upon such terms and conditions as may be set out by the council when permission for assignment is granted. Should the grantee sell, assign, transfer, convey or otherwise dispose of any of its rights or its interests under the franchise ordinance codified in this chapter, or attempt to do so, in violation of this requirement to obtain prior consent, the metropolitan government may revoke this franchise for default, in which event all rights and interest of the grantee shall cease and no purported sale, assignment, transfer or conveyance shall be effective. (Amdt. 1(26) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 29, 1994)

6.26.300 Violations.

If the metropolitan government has reason to believe that grantee is in violation of this chapter, the metropolitan government shall notify grantee in writing of the violation, setting forth the nature of such violation. Within ten days of receipt of such notice, grantee shall respond in writing to provide explanation or documentation to support that the violation did not occur. Grantee shall be allowed thirty days to cure violations after written notice is received from the metropolitan government.

Upon evidence being received by the metropolitan government that any violation of the franchise ordinance codified in this chapter, any Metropolitan Charter provisions or any ordinances lawfully regulating grantee in the construction and operation of this system is occurring, or has occurred, the metropolitan government shall cause an investigation to be made. If the metropolitan government finds that such a violation exists or has occurred, the grantee shall take appropriate steps to comply with the terms of the franchise ordinance codified in this chapter and any lawful regulation. Should grantee fail to comply, after the above-stated notice and opportunity to cure, then the metropolitan government may take any action authorized by law, including revocation or repeal of the franchise or a suit in court to compel compliance. If, in any such proceeding, default is finally established, grantee shall be required to pay to the metropolitan government the reasonable expenses incurred in the prosecution of such suit and all the metropolitan government's damages and costs (including attorney's fees). (Ord. 94-1103 § 30, 1994)

6.26.310 Revocation and termination.

A. In addition to all other rights and powers retained by the metropolitan government under the franchise ordinance codified in this chapter or otherwise, the metropolitan government reserves the right to revoke and terminate any franchise issued by authority of the ordinance codified in this chapter, and all rights and privileges of grantee hereunder shall cease in the event of material breach, subject to reasonable notice and opportunity to cure, of its terms and conditions. A material breach of grantee shall include, but shall not be limited to, the following:

1. Grantee's violation of any material provision of the franchise ordinance codified in this chapter or any material rule, order or regulation of the metropolitan government made pursuant to the franchise ordinance codified in this chapter;

2. Grantee's failure to properly compensate the metropolitan government as required in the franchise ordinance codified in this chapter;

3. Grantee's attempt to evade any material provision of the franchise ordinance codified in this chapter or to practice any fraud or deceit upon the metropolitan government or upon grantee's end-user customers or interexchange carriers;

4. Grantee's failure to comply with Section 6.26.060 of this chapter;

5. For failure to file and maintain the bond, security or insurance required under this chapter;

6. Grantee's failure to comply with Section 6.26.290 of this chapter;

7. Grantee's failure to respond to or comply with reports, audits, statements and other information lawfully requested by the metropolitan government;

8. Grantee's failure to operate its system for six months after it has been constructed; or

9. Grantee's material misrepresentation of fact in its application or negotiations during the franchise process; or the conviction of any director, officer, employee or agent of grantee for the offense of bribery or fraud connected with or resulting from the award of the franchise to grantee.

B. The foregoing shall not constitute a material breach if the violation occurs without the fault of grantee or occurs as a result of circumstances beyond its control. Grantee shall not be excused by mere economic hardship, nor misfeasance or malfeasance of its directors, officers or employees. Revocation or termination shall only take place for material cause.

C. If any provision of this chapter shall be preempted by state or federal regulations, or finally adjudged by a court of law invalid or unenforceable and the council further finds that such provision constitutes at that time a consideration material to the continuance of the franchise herein granted, the metropolitan government reserves the right to revoke and terminate any franchise issued under authority of this chapter. (Amdt. 1(27), (28), (29), (30), (31) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 31, 1994)

6.26.320 Service standards.

Grantee shall maintain and operate its communications system and business in an efficient manner and shall provide adequate, efficient and reasonable service to its customers in Metropolitan Nashville and Davidson County. Once it commences operation, grantee's system shall provide continuous and uninterrupted service throughout the term of the franchise.

Grantee shall comply with all applicable federal, state and local laws, rules and regulations, including the Tennessee Public Service Commission. (Amdt. 1(32) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 32, 1994)

6.26.330 Preferential or discriminatory practices prohibited.

Pursuant and subject to applicable federal, state and local laws, grantee shall not make or grant any unreasonable preference or advantage to any person, nor subject any person to any unreasonable prejudice or disadvantage in its exercise of the rights and privileges granted by its franchise; provided, however, that nothing in its franchise shall be deemed to prohibit the establishment of a graduated scale of charges and classified rate schedules, consistent with applicable law, to which any customer coming within such classification would be entitled. (Amdt. 1(33) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 33, 1994)

6.26.340 Conflict with other laws.

Where a provision of this chapter or grantee's franchise is in conflict with any state or federal statute or a rule of the Tennessee Public Service Commission or FCC, so that grantee cannot reasonably comply with both the provisions of this chapter or franchise and the statute or rule of the Tennessee Public Service Commission of FCC, then grantee may comply with such rule instead of the conflicting provision of this chapter or the franchise until such time as the metropolitan government obtains a contrary ruling or other relief from an appropriate regulatory agency or court of competent jurisdiction; provided, that the metropolitan government is given written notice of and a statement of the legal grounds for such noncompliance. Grantee shall comply with all remaining provisions of this chapter or franchise. Notice of noncompliance given pursuant to this shall not relieve grantee—upon determination that the noncompliance was unlawful or otherwise improper—from the obligation to pay more damages, redo work at grantee's expense, or otherwise take such steps as may be necessary to restore the metropolitan government to the position it would have been in if grantee had remained in compliance with this chapter and its franchise. (Amdt. 1(34) to Ord. 94-1103, 7/19/94; Ord. 94-1103 § 34, 1994)

6.26.350 Compliance with applicable laws and ordinances.

Grantee shall, at all times during the term of its franchise, be subject to the provisions of the present Charter of the Metropolitan Government, the present ordinances, resolutions, rules, regulations and laws of the metropolitan government and the State of Tennessee, and to the provisions of any further charter, ordinance, resolution, rule, regulation or law of the metropolitan government or of the State of Tennessee, so far as they may be applicable, including but not limited to the provisions of the Zoning Code codified in Title 17 hereof, especially Chapter 17.16 and Section 17.16.080 thereof. (Ord. BL2016-415 § 8, 2016; Ord. 94-1103 § 35, 1994)

6.26.360 Tennessee law governs.

In any controversy or dispute under this chapter, the law of the State of Tennessee shall apply to the extent such law has not been superseded or preempted. (Ord. 94-1103 § 36, 1994)

6.26.370 Metropolitan government taking part in litigation.

The metropolitan government shall have the right to take part in, by intervention or otherwise at its option, in any suit, action, or proceeding instituted by or against grantee in which any judgment, decree, or order can be rendered affecting the rights, powers or duties of grantee to do or not to do anything which, by its franchise or this chapter, it is obligated or may be required to do or not to do or affecting, such as by foreclosure or lien, grantee's title to any facility. Grantee shall not object to the metropolitan government's exercise of such right. (Ord. 94-1103 § 37, 1994)

6.26.380 Office location.

The grantee shall maintain an office in Metropolitan Nashville and Davidson County. Grantee shall always keep and maintain city specific books, records, contracts, accounts, documents, and papers for its operation within Metropolitan Nashville and Davidson County. All maps, plats, records and inventories and books of the grantee, insofar as they show values and location of existing property shall be preserved for use, if necessary, in connection with any future valuation of the property of the grantee. (Ord. 94-1103 § 38, 1994)

6.26.390 Severability.

In any section, subsection, sentence, clause, phrase, term, provision, condition, covenant or portion of the franchise ordinance codified in this chapter is for any reason held invalid or unenforceable by any court of competent jurisdiction, the remainder of the franchise ordinance codified in this chapter shall not be affected thereby, but shall be deemed as a separate, distinct and independent provision, and such holding shall not affect the validity of the remaining portions hereof, and each remaining section, subsection, sentence, clause, phrase, term, provision, condition, covenant and portion of the franchise ordinance codified in this chapter shall be valid and enforceable to the fullest extent permitted by law. (Ord. 94-1103 § 39, 1994)

Chapter 6.28

HOTELS AND ROOMINGHOUSES

Sections:

6.28.010	**Register requirements.**
6.28.020	**Registration under fictitious name prohibited.**
6.28.030	**Short term rental property permit.**
6.28.035	**Short term rental appeals board.**
6.28.040	**Hourly room rental limitations.**
6.28.050	**Payments.**

6.28.010 Register requirements.

A. Every person operating a hotel, roominghouse, or short term rental property, engaged in the business of lodging transients, shall keep a book or register in which shall be listed the name and address of each of its guests or lodgers, together with the date of arrival and the date of departure.

B. Such book or register shall be kept so as to show arrivals and departures of guests for a period of at least six months.

C. Every person operating a hotel or roominghouse and the employees thereof shall exhibit such book or register to any member of the police department upon the written request of the chief of police or any duly appointed deputy chief of police.

D. If inspection of the book or register is refused, the operator, manager, or person in charge shall secure the book or register in the manner required by the requesting police officer, so that its contents are preserved. The book or register shall be kept in the secured location until such time as an administrative or judicial search warrant, subpoena, or order can be granted or denied, and any appeal resolved. (Ord. BL2024-478 § 1, 2024; Ord. BL2016-177 § 1, 2016; prior code § 29-1-25)

6.28.020 Registration under fictitious name prohibited.

It is unlawful for any person to write or cause to be written or knowingly permit to be written in any register in any hotel, lodginghouse, roominghouse or other place whatsoever where transients are accommodated in the area of the metropolitan government, any other or different name or designation than the true name of the person so registered therein, or the name by which such person is generally known. (Prior code § 29-1-26)

6.28.030 Short term rental property permit.

A. "Short term rental property (STRP)—Owner-occupied" means an owner-occupied residential dwelling unit containing not more than four sleeping rooms that is used and/or advertised through an online marketplace for rent for transient occupancy by guests.

1. STRP owner-occupied is permitted as an accessory use in all zoning districts that allow residential use excluding NS districts provided a permit has been issued for operation of the property as an STRP pursuant to this section. In IWD, IR and IG, STRP is permitted as an accessory use to a multi-family use associated with Manufacturing, Artisan use.

2. Requirements and restrictions.

a. No person or entity shall operate an STRP or advertise a residential property for use as an STRP without the owner of the property first having obtained an STRP permit issued by the department of codes administration in accordance with the provisions of this chapter.

b. Any advertising or description of an STRP on any internet website must: (a) prominently display the permit number for the STRP unit; or (b) include an image of the permit, or a link to an image of the permit, in which the permit number is legible. Further, other than for a legally permitted detached accessory dwelling unit; for a legally permitted accessory apartment; or for a two-family residential unit under common ownership with a two-family unit on the same lot permitted in accordance with subsection A.2.e. of this section, advertisements for an owner-occupied STRP shall not advertise availability of entire/whole home for STRP use.

c. To qualify for an STRP-owner-occupied permit, the owner of the property occupy the subject property of the STRP as their primary residence as proven by the documents required in Section 6.28.030.A.b.iv. For conforming uses in single-family and one- and two-family zoning districts, the owner may occupy as their primary residence in a residential unit on the same lot. The owner of the property: (1) must be a natural person or persons; (2) may not be a limited liability entity, including without limitation a corporation or limited liability company; and (3) may not be an unincorporated entity, including without limitation a partnership, joint venture, or trust.

d. Only one permit shall be issued per lot in single-family and two-family zoning districts.

e. Ownership of two-family dwellings.

i. The property ownership of the two-family units cannot be divided.

ii. The two-family units shall be owned by the same person and one of the two units shall be the primary residence of the owner.

iii. Prior to the issuance of a permit, an instrument shall be prepared and recorded with the register's office covenanting that the two-family dwelling may only be used under the conditions listed above as long as the STRP—Owner-occupied permit is valid.

f. Notwithstanding any provision herein to the contrary, any residential dwelling created by or contained within a horizontal property regime pursuant to Tenn. Code Ann. § 66-27-101, et seq. shall not be limited or otherwise restricted by subsections (d) or (e) of this section if a permit was issued on or before July 1, 2019.

3. Application.

a. STRP permit applications shall be valid for ninety calendar days from the date filed and shall expire if the application process has not been completed within that time.

b. The STRP permit application shall verify by affidavit that all of the information being provided is true and accurate and the application shall include the following information:

i. The name, telephone number, address, and email address of the owner and of a person or business ("responsible party") residing or located within twenty-five miles of the STRP that is responsible for addressing all maintenance and safety concerns;

ii. Proof of insurance evidencing homeowner's fire, hazard, and liability insurance. Liability coverage shall have limits of not less than one million dollars per occurrence.

iii. Proof of written notification to the owner of each adjacent property prior to filing the application. For each such adjacent property, proof of written notification shall be: (a) a signature of an owner; (b) a signed receipt of U.S. registered or certified mail addressed to an owner; or (c) notice from the U.S. Postal Service that registered or certified mail to an owner was refused or not timely accepted.

iv. For owners applying for an owner-occupied permit, four documents giving proof of owner-occupation shall be provided. Each document must be current and show the owner's name and address matching that of the property to be utilized for short term rental. Two documents are required from Group A and two documents are required from Group B:

(1) Group A acceptable documentation includes: (a) Tennessee Driver's license; (b) other valid State of Tennessee identification card; (c) Davidson County voter registration card; (d) Internal Revenue Service tax reporting form, such as a W-2 or 1099; (e) Current Motor Vehicle Registration or Title.

(2) Group B items include (a) current automobile insurance, (b) current life insurance, (c) current homeowners' insurance policy. (Wallet Cards not accepted); (d) paycheck/check stub, (e) a bank statement (f) current employer verification of residential address or a letter from the employer on company letterhead with original signature, excluding applicants that are self employed (If the employer does not have letterhead, the signature of the employer must be notarized.).

v. A statement that the applicant has confirmed that operating the proposed STRP would not violate any homeowners association agreement or bylaws, condominium agreement, co-op agreement, lease agreement, covenants, easements, codes and restrictions or any other agreement governing and limiting the use of the proposed STRP property.

vi. Proof of payment of all taxes due, including property taxes and, for permit renewals, all applicable room, occupancy, and sales taxes required by state law or the Metropolitan Code.

c. The zoning administrator has the discretion to deny applications for an owner-occupied short term rental application on the following grounds:

i. Any documentation, including written statements by the owner, that the property is not the primary residence of the owner or would cease to be the primary residence of the owner during the period for which the permit is valid.

ii. Affidavits from neighbors regarding the primary residency of the applicant.

4. Signage. Any sign, as defined in Section 17.32.030.B of the Metropolitan Code, on a property used for an STRP shall be governed by the provision of Chapter 17.32, Sign Regulations, of the Metropolitan Code.

5. Regulations.

a. All STRP occupants shall abide by all applicable noise restrictions and regulations regarding the public peace and welfare contained in the Metropolitan Code, and all applicable waste management provisions of Chapter 10.20 of the Metropolitan Code.

b. The STRP shall meet all applicable requirements of the state and local building and fire safety codes, including, but not limited to, having approved smoke alarms meeting Underwriters Laboratory (UL) 217 standards installed as follows:

i. In all sleeping areas.

ii. In every room in the path of the means of egress from the sleeping area to the door leading from the sleeping unit.

iii. In each story within the sleeping unit, including basements.

c. Parking shall be provided as required by Section 17.20.030 of the Metropolitan Code. No recreational vehicles, buses, or trailers shall be visible on the street or property in conjunction with the STRP use.

d. No food shall be prepared for or served to the transient by the permit holder.

e. The principal renter of an STRP unit shall be at least twenty-one years of age.

f. Maximum occupancy. The maximum number of occupants permitted on an STRP property at any one time shall not exceed more than twice the number of sleeping rooms plus four. Simultaneous rental to more than one party under separate contracts shall not be allowed. The occupancy maximum shall be conspicuously posted within the STRP unit. Advertising an STRP for more occupants than allowed by this regulation shall be grounds for revocation of the permit.

g. The STRP owner shall not receive any compensation or remuneration to permit occupancy of an STRP for a period of less than twenty-four hours. The maximum stay for any guest shall be thirty consecutive days.

h. The name and telephone number of the local responsible party shall be conspicuously posted within the STRP unit. The responsible party shall answer calls twenty-four hours a day, seven days a week for the duration of each short term rental period to address problems associated with the STRP.

i. Expiration and renewal of permit.

i. An STRP permit shall expire three hundred sixty-five days after it is issued unless it is renewed prior to its expiration.

ii. For STRP units that have received no documented complaints to metro codes, police, or public works during the most recent permit period, a renewal application may be submitted by mail, online, or in person according to regulations promulgated by the metro codes department. All such renewal applications shall include:

(1) The payment of a renewal fee set by the zoning administrator; and

(2) A statement verified by affidavit that:

(a) Includes all of the information required in an application under Section 6.28.030.A.3; and

(b) The STRP continues to be in full compliance with all applicable laws, including the payment of all applicable taxes.

iii. For an STRP that has received no documented complaints to metro codes, police, or public works during the most recent permit period, a thirty calendar day grace period for renewal after the expiration of the STRP permit may be allowed by the zoning administrator upon a showing by the owner of a reasonable explanation other than neglect or mistake for the delay.

iv. For an STRP with documented complaints to metro codes, police, or public works during the most recent permit period, no grace period shall be allowed and all permit renewal applications shall be submitted timely. The renewal application shall be submitted with a statement verified by affidavit that includes all of the information required in an application under Section 6.28.030.A.3.

v. The zoning administrator may require additional proof of residency if there are concerns regarding the authenticity or accuracy of previously submitted documentation.

j. The permit holder shall be responsible for collecting and remitting all applicable room, occupancy, and sales taxes required by state law or the Metropolitan Code.

k. An STRP permit shall not be transferred or assigned to another individual, person, entity, or address, nor shall the permit authorize any person, other than the person named therein, to operate an STRP on the property. If the zoning administrator determines that there has been a change in ownership, the permit will no longer be valid, and the new property owner must apply for a permit under the regulations in effect at the time the new application is received.

l. Denial or Revocation of Permit.

i. Upon the filing of a complaint regarding an STRP permit, the department of codes administration shall notify the permit holder in writing or by e-mail of such complaint. All complainants shall be notified that any false complaint made against a short-term rental unit provider are punishable as perjury under Tenn. Code Ann. § 39-16-702.

ii. If the zoning administrator determines, based on reasonably reliable information that the zoning administrator has obtained including without limitation public records or reports, records of regularly conducted activity, or a direct or online statement against a person's own interest, that three violations of generally applicable provisions of the Metropolitan Code of Laws have occurred as a direct result of the operation of the short-term rental unit, the permit to operate an STRP may be revoked if no appeal rights remain.

iii. Before revoking any permit, the department of codes administration shall give the permit holder fifteen days written notice of the alleged violation(s) against him/her.

iv. Any denial or revocation of an STRP permit may be appealed to the short term rental appeals board pursuant to Section 6.28.035.B of the Metropolitan Code.

v. Upon the final determination of denial of an STRP permit, no new permit application may be filed by the applicant for the same property for a period of six months from the date the denied application was filed.

vi. Once an STRP permit has been revoked, no new permit shall be issued to the applicant for the same property for a period of one year.

vii. The penalty for operating a short term rental property without a permit shall be:

(1) A fifty dollar fine as imposed by a court of competent jurisdiction. Each day of operation without a permit shall constitute a separate offense.

(2) Upon a determination by the zoning administrator or the zoning administrator's designee that a short term rental property has operated without having obtained a permit, there shall be a waiting period of one year from the date of such determination by the zoning administrator or designee for the property to become eligible for an STRP permit. Upon a determination by the zoning administrator or the zoning administrator's designee that a short term rental property has operated without having renewed a previously issued permit, there shall be a waiting period of six months from the date of such determination by the zoning administrator or designee for the property to become eligible for an STRP permit.

(3) Upon a finding of a court of competent jurisdiction that a short term rental property has operated without a permit, in addition to any other relief granted, there shall be a waiting period of three years from the date of such finding for the property to become eligible for an STRP permit.

m. Any future ordinance amending this Section 6.28.030 shall require a public hearing before the metropolitan council prior to its enactment. Notice of such public hearing shall be published in a newspaper of general circulation in Davidson County no less than twenty-one days prior to the public hearing.

B. "Short term rental property (STRP)—Not owner-occupied" means a residential dwelling unit that is not owner-occupied containing not more than four sleeping rooms that is used and/or advertised through an online marketplace for rent for transient occupancy by guests.

1. STRP not owner-occupied is permitted with conditions (PC) in MUN and MUN-A, MUL and MUL-A, MUG and MUG-A, MUI and MUI-A, OG, OR20 through OR40-A, ORI and ORI-A, CN and CN-A, CL and CL-A, CS and CS-A, CA, CF, DTC North, DTC South, DTC-West, DTC Central, SCN, SCC and SCR.

2. Requirements and restrictions.

a. No person or entity shall operate an STRP or advertise a residential property for use as an STRP without the owner of the property first having obtained an STRP permit issued by the department of codes administration in accordance with the provisions of this chapter.

b. Any advertising or description of an STRP on any internet website must: (a) prominently display the permit number for the STRP unit; or (b) include an image of the permit, or a link to an image of the permit, in which the permit number is legible.

c. In single-family and one- and two-family zoning districts, all property improvements shall comply with the Chapter 17.12 (District Bulk Regulations) for single-family or two-family uses, depending on the number of units on the property.

d. Minimum distance requirements:

i. No new STRP permit shall be issued to an applicant whose location is less than one hundred feet from a religious institution, a school or its playground, a park, or a licensed day care center or its playground. Distance shall be measured in a straight line from the closest point of the parcel line of the property for which a STRP is sought to the closest point of the parcel line of the property on which the religious institution, school or its playground, park, or licensed daycare center or its playground is located.

ii. Notwithstanding subsection (d)(i) of this section, a STRP permit applicant may be exempt from the minimum distance requirements set forth herein upon the adoption of a resolution, after a public hearing, by the metropolitan council receiving twenty-one affirmative votes approving the exemption of the STRP unit from said minimum distance requirements. One resolution and public hearing may be held for the exemption of multiple dwelling units on a single tax parcel or within a single multifamily development containing one or multiple parcels if the permit applications are submitted at the same time and the dwelling units are owned by the same owner. The department of codes administration shall notify the councilmember for the district in which the applicant unit is located in writing within five business days from the date the application is filed requesting the waiver of distance requirements. The public hearing required by this subsection shall be conducted by the council at a regular meeting of the council. Public notification of the hearing shall be conducted pursuant to the public notice requirements for amendments to the official zoning map in accordance with Article XV of Chapter 17.40 of the Metropolitan Code, provided that notice by mail shall be sent to all property owners within six hundred feet of the unit seeking the exemption from the minimum distance requirements not later than fourteen days prior to the scheduled public hearing on the resolution. Further, a public notice sign meeting the general requirements of Section 17.40.730 of the

Metropolitan Code shall be posted on the property of the applicant seeking the exemption from the minimum distance requirements at least fourteen days prior to the scheduled public hearing. The costs for the public notification requirements shall be paid by the applicant. The applicant shall coordinate the scheduling of the public hearing with the metropolitan clerk's office prior to the filing of the resolution for purposes of including the date and time of the public hearing in the public notice to be mailed.

iii. Otherwise qualifying properties under active development in 2020, either with a valid master permit on file with the department of codes administration on or before September 1, 2020, or who completed at least fifty percent construction on a new unit as of September 1, 2020, are not subject to the provisions of this subsection d.

3. Application.

a. STRP permit applications shall be valid for ninety calendar days from the date filed and shall expire if the application process has not been completed within that time.

b. The STRP permit application shall verify by affidavit that all of the information being provided is true and accurate and the application shall include the following information:

i. The name, telephone number, address, and email address of the owner and of a person or business ("responsible party") residing or located within twenty-five miles of the STRP that is responsible for addressing all maintenance and safety concerns;

ii. Proof of insurance evidencing homeowner's fire, hazard, and liability insurance. Liability coverage shall have limits of not less than one million dollars per occurrence.

iii. Proof of written notification to the owner of each adjacent property prior to filing the application. For each such adjacent property, proof of written notification shall be: (a) a signature of an owner; (b) a signed receipt of U.S. registered or certified mail addressed to an owner; or (c) notice from the U.S. Postal Service that registered or certified mail to an owner was refused or not timely accepted.

iv. A statement that the applicant has confirmed that operating the proposed STRP would not violate any homeowners association agreement or bylaws, condominium agreement, co-op agreement, lease agreement, covenants, easements, codes and restrictions or any other agreement governing and limiting the use of the proposed STRP property.

v. Proof of payment of all taxes due, including property taxes and, for permit renewals, all applicable room, occupancy, and sales taxes required by state law or the Metropolitan Code.

4. Signage. Any sign, as defined in Section 17.32.030.B of this Zoning Code, on a property used for an STRP shall be governed by the provision of Chapter 17.32, Sign Regulations, of the Metropolitan Code.

5. Regulations.

a. All STRP occupants shall abide by all applicable noise restrictions and regulations regarding the public peace and welfare contained in the Metropolitan Code, and all applicable waste management provisions of Chapter 10.20 of the Metropolitan Code.

b. The STRP shall meet all applicable requirements of the state and local building and fire safety codes, including, but not limited to, having approved smoke alarms meeting Underwriters Laboratory (UL) 217 standards installed as follows:

i. In all sleeping areas.

ii. In every room in the path of the means of egress from the sleeping area to the door leading from the sleeping unit.

iii. In each story within the sleeping unit, including basements.

c. Parking shall be provided as required by Section 17.20.030. No recreational vehicles, buses, or trailers shall be visible on the street or property in conjunction with the STRP use.

d. No food shall be prepared for or served to the transient by the permit holder.

e. The principal renter of an STRP unit shall be at least twenty-one years of age.

f. Maximum occupancy. The maximum number of occupants permitted on an STRP property at any one time shall not exceed more than twice the number of sleeping rooms plus four. Simultaneous rental to more than one party under separate contracts shall not be allowed. The occupancy maximum shall be conspicuously posted within the STRP unit. Advertising an STRP for more occupants than allowed by this regulation shall be grounds for revocation of the permit.

g. The STRP owner shall not receive any compensation or remuneration to permit occupancy of an STRP for a period of less than twenty-four hours. The maximum stay for any guest shall be thirty consecutive days.

h. The name and telephone number of the local responsible party shall be conspicuously posted within the STRP unit. The responsible party shall answer calls twenty-four hours a day, seven days a week for the duration of each short term rental period to address problems associated with the STRP.

i. Expiration and renewal of permit.

i. An STRP permit shall expire three hundred sixty-five days after it is issued unless it is renewed prior to its expiration.

ii. For STRP units that have received no documented complaints to Metro Codes, police, or public works during the most recent permit period, a renewal application may be submitted by mail, online, or in person according to regulations promulgated by the metro codes department. All such renewal applications shall include a statement verified by affidavit that:

(1) includes all of the information required in an application under Section 6.28.030.B.3; and

(2) the STRP continues to be in full compliance with all applicable laws, including the payment of all applicable taxes.

iii. For an STRP that has received no documented complaints to Metro Codes, police, or public works during the most recent permit period, a thirty calendar day grace period for renewal after the expiration of the STRP permit may be allowed by the zoning administrator upon a showing by the owner of a reasonable explanation other than neglect or mistake for the delay.

iv. For an STRP with documented complaints to Metro Codes, police, or public works during the most recent permit period, no grace period shall be allowed and all permit renewal applications shall be submitted timely. The renewal application shall be submitted with a statement verified by affidavit that includes all of the information required in an application under Section 6.28.030.B.3.

j. The permit holder shall be responsible for collecting and remitting all applicable room, occupancy, and sales taxes required by state law or the Metropolitan Code.

k. An STRP permit shall not be transferred or assigned to another individual, person, entity, or address, nor shall the permit authorize any person, other than the person named therein, to operate an STRP on the property. If the zoning administrator determines that there has been a change in ownership, the permit will no longer be valid, and the new owner must apply for a permit under the regulations in effect at the time the new application is received.

l. Denial or Revocation of Permit.

i. Upon the filing of a complaint regarding an STRP permit, the department of codes administration shall notify the permit holder in writing or by e-mail of such complaint. All complainants shall be notified that any false complaint made against a short-term rental unit provider are punishable as perjury under Tenn. Code Ann. § 39-16-702.

ii. If the zoning administrator determines, based on reasonably reliable information that the zoning administrator has obtained including without limitation public records or reports, records of regularly conducted activity, or a direct or online statement against a person's own interest, that three violations of generally applicable provisions of the Metropolitan Code of Laws have occurred as a direct result of the operation of the short-term rental unit, the permit to operate an STRP may be revoked if no appeal rights remain.

iii. Before revoking any permit, the department of codes administration shall give the permit holder fifteen days written notice of the alleged violation(s) against him/her.

iv. Any denial or revocation of an STRP permit may be appealed to the short term rental appeals board as an administrative appeal pursuant to Section 6.28.035.B. of the Metropolitan Code.

v. Once an STRP permit has been revoked, no new permit shall be issued to the applicant for the same property for a period of one year from the date of the revocation.

vi. The penalty for operating a short term rental property without a permit shall be:

(1) A fifty dollar fine as imposed by a court of competent jurisdiction. Each day of operation without a permit shall constitute a separate offense.

(2) Upon a determination by the zoning administrator or the zoning administrator's designee that a short term rental property has operated without having obtained a permit, there shall be a waiting period of one year from the date of such determination by the zoning administrator or designee for the property to become eligible for an STRP permit. Upon a determination by the zoning administrator or the zoning administrator's designee that a short term rental property has operated without having renewed a previously issued permit, there shall be a waiting period of six months from the date of such determination by the zoning administrator or designee for the property to become eligible for an STRP permit.

(3) Upon a finding of a court of competent jurisdiction that a short term rental property has operated without a permit, in addition to any other relief granted, there shall be a waiting period of three years from the date of such finding for the property to become eligible for an STRP permit.

m. Any future ordinance amending this Section 6.28.030 shall require a public hearing before the metropolitan council prior to its enactment. Notice of such public hearing shall be published in a newspaper of general circulation in Davidson County no less than twenty-one days prior to the public hearing. (Amdts. 1—3 to Ord. BL2024-478 §§ 2—9, 2024; Ord. BL2024-

478 §§ 2—8, 2024; Amdt. 1 to Ord. BL2023-1884 § 1, 2023; Ord. BL2023-1884 § 1, 2023; Ord. BL2019-79 § 1, 2020; Amdt. to Ord. BL2020-187 § 3, 2020; Ord. BL2020-187 § 3, 2020)

Editor's note—Prior to reenactment by Ord. BL2020-187 § 3, passed July 7, 2020, Ord. BL2016-492, § 1, passed Feb. 21, 2017, repealed § 6.28.030, which pertained to short term rental property (STRP) and derived from Ord. BL2014-951 § 1, 2015; Amdt. to Ord. BL2014-951 § 1, 2015; Ord. BL2015-94 §§ 1—3, 2016; Amdt. 1 to Ord. BL2015-94 § 1, 2016; Ord. BL2016-257 § 2, 2016; Amdt. 1 to Ord. BL2016-257 § 2, 2016; Ord. BL2016-309 § 1, 2016; Ord. BL2016-373 § 1, 2016; Amdt. 1 to Ord. BL2016-373 § 1, 2016; Ord. BL2016-374 §§ 1, 2, 2016; Ord. BL2016-381 §§ 1—10, 2016; Amdt. 1 to Ord. BL2016-381 §§ 1, 3, 6—9, 2016.

6.28.035 Short term rental appeals board.

A. A short term rental (STR) appeal board is created and designated the metropolitan short term rental appeals board.

B. The board shall be staffed by the department of codes administration and shall hear and decide appeals from decisions made by the zoning administrator regarding STR permits whereby it is alleged in writing that the zoning administrator is in error or acted arbitrarily. The board shall have jurisdiction to uphold, reverse, or modify in whole or in part the zoning administrator's decision regarding permit issuance or revocation for all permits eligible for review.

C. The board shall consist of seven voting members. Three members shall be elected by a majority vote of the whole membership of the metropolitan council and shall each serve terms of four years. The remaining four members shall be appointed by the mayor and confirmed by a majority vote of the metropolitan council and shall each serve terms of four years or until their successors are appointed. Of the members appointed by the mayor, at least two shall be attorneys. In addition, a member of the metropolitan council shall be selected by that body from its membership to serve as a non-voting member of the board for a term of two years. In no event shall the term of the council member extend beyond the council term in which they were elected.

D. Board members shall annually elect a chair and a vice-chair from among their membership. The vice-chair is authorized to act in the place of the chair and in the same capacity as the chair when the chair is unavailable.

E. The board shall hold regular meetings each month at a time fixed by the board and may hold such special meetings as may be necessary.

F. The attendance of four members of the board shall be required to constitute a quorum for the purpose of transacting business. The concurring vote of at least a majority of those members present at the meeting shall be necessary to uphold, reverse, or modify in whole or in part the decision of the zoning administrator.

G. The board shall promulgate such bylaws, rules and/or regulations not inconsistent with state law, the Metropolitan Charter, or any ordinance as it deems appropriate, for the filing and pursuit of appeals under this chapter (including appropriate limitations periods), for the course of hearings held before them, and for the conducting of its business generally.

H. When deciding appeals from decisions made by the zoning administrator based on evidence presented to the board, the board shall determine whether the appellant has shown by a preponderance of the evidence that the zoning administrator is in error or acted arbitrarily. If the board finds that the zoning administrator did not act in error or arbitrarily, it may modify the penalty in whole or in part upon consideration of the following factors:

1. Intent. Whether the appellant did knowingly commit a wrongful act under this code.

2. Injury to the Neighboring Residents and Properties. Whether the granting of relief will be injurious to other properties or residents in the area.

3. Undue Hardship. Whether the failure to grant relief would result in exceptional practical difficulties or undue hardship upon the appellant. However, any such hardship or difficulty shall not be self-imposed, created by the actions of any person having an interest in the property.

4. Remedial Action. Whether the appellant has corrected or abated a wrongful activity or condition upon being notified by the zoning administrator of the applicable law.

5. Furtherance of Public Policy. Whether the granting of relief will substantially impair the intent and purpose of the code. (Amdt. 1 to Ord. BL2025-811, 2025; Ord. BL2025-811 § 20, 2025; Ord. BL2024-582 § 8, 2024; Amdt. 1 to Ord. BL2023-136 § 1, 2024; Ord. BL2023-136 § 1, 2024; Ord. BL2022-1579 § 1, 2023; Ord. BL2022-1528 § 9, 2023; Ord. BL2020-187 § 4, 2020)

Editor's note—Ord. BL2022-1579 § 1, states: That the term of the current member of Council selected by the Metropolitan Council from its membership to serve on the Short Term Rental Appeals Board, as codified in Metropolitan Code of Laws Section 6.28.035, will end on October 31, 2023. The next term for the Councilmember selected by the Metropolitan Council to serve on the Short Term Rental Appeals Board will begin on November 1, 2023, or as soon as the Council selects a new Board member, whichever is earlier, and shall serve for two years, consistent with Metropolitan Code Section 6.28.035.C.

6.28.040 Hourly room rental limitations.

A. It shall be unlawful for any owner, operator, or employee of any hotel, motel, or other similar establishment to rent a room, intended for temporary lodging or sleeping purposes, on an hourly basis or for a period less than ten hours.

B. It shall be unlawful for any owner, operator, or employee of any hotel, motel, or other similar establishment to offer a discount or rebate for early checkout of a room, intended for temporary lodging or sleeping purposes, within a ten-hour period. (Ord. BL2017-738 § 1, 2017)

6.28.050 Payments.

A. If a hotel, motel, or roominghouse accepts cash payment, it must further accept at least one other form of payment, such as credit card, debit card, or check.

B. Upon payment by a guest for accommodation, a hotel, motel, or roominghouse must provide the patron with a receipt reflecting payment and maintain a record thereof. (Ord. BL2018-1200 § 1, 2018)

Chapter 6.32

HUCKSTERS AND PEDDLERS

Sections:

6.32.010	**Nashville Convention Center—Area regulations.**
6.32.020	**Municipal auditorium—Area regulations.**
6.32.030	**Municipal auditorium—Disclosure of admission charge.**
6.32.040	**Nashville Arena—Area regulations.**
6.32.050	**Ryman Auditorium—Area regulations.**
6.32.060	**Tennessee Performing Arts Center—Area regulations.**
6.32.070	**War Memorial Auditorium—Area regulations.**
6.32.080	**Ascend Amphitheater—Area regulations.**
6.32.090	**First Tennessee Park—Area regulations.**

6.32.010 Nashville Convention Center—Area regulations.

A. The sale or offering for sale of any goods or personal property is prohibited, within areas specified in this subsection, on any date whereon an event or show has been duly scheduled in the Nashville Convention Center. The prohibition includes all times necessary for preparation and removal of any material before and after any such event or show. Such sale or offering for sale of goods or personal property is prohibited upon the streets and sidewalks in the area of the metropolitan government surrounding the Nashville Convention Center, and more particularly described as follows:

Beginning at the northwest corner of Broadway and Seventh Avenue North and proceeding in a northeasterly direction along the northerly margin and sidewalk of Broadway adjacent to the Convention Center of Broadway to the northwest corner of Broadway and Fifth Avenue North, thence proceeding in a northwesterly direction along the westerly margin and sidewalk of Fifth Avenue adjacent to the Convention Center to the western side of the intersection of Fifth Avenue North and Commerce Street, thence proceeding in a southwesterly direction along the northern and southern margins and sidewalks of Commerce Street to the easterly side of the intersection of Commerce Street and Fifth Avenue North.

Provided, however, that the provisions of this section shall not apply to individuals soliciting for a bona fide charitable or religious purpose when such individual or organization shall have been approved and granted either a charitable solicitations permit or a religious registration by the metropolitan charitable solicitations board, or when such individual or organization shall have been exempted from any such requirements. Nor shall the provisions of this section apply to any individuals while in the process of exercising any lawful right of speech or assembly protected by the Constitution of the United States and the State of Tennessee.

B. The provisions of this section shall not be construed to limit, abridge or otherwise abrogate any other requirement established by any other ordinance concerning licenses or permits which may be required to be obtained before any such sale or offering for sale of any goods referenced in subsection A of this section which may take place. Should the requirements of this section be more stringent than the requirements of any other ordinance which may relate to the sale or offering for sale of any goods referenced in subsection A of this section and within the area in which such sale or offering for sale is proscribed, then the provisions of this section shall prevail. (Ord. 95-1329 § 5 (part), 1995; Ord. 89-661 §§ 1—3, 1989)

6.32.020 Municipal auditorium—Area regulations.

A. The sale or offering for sale of personal property, including but not limited to food, candy, confections, programs, books, pictures, records, tee shirts, lights and other novelties, or any and all other articles of personal property whatsoever by any person, is prohibited between the hours of eight a.m. and eleven p.m. on any date whereon a performance or event has been duly scheduled in the municipal auditorium through a lease agreement executed by both the lessee and the municipal auditorium building manager, under authority granted to the manager by the metropolitan auditorium commission, and such executed lease has been filed in the office of the metropolitan clerk. Such sale or offering for sale is prohibited upon the streets and sidewalks in an area of the metropolitan government surrounding the municipal auditorium, and more particularly described as follows:

Beginning at the southeast corner of the metropolitan courthouse located at the intersection of Third Avenue and Deadrick Street, proceeding in a northwesterly direction along this avenue to the intersection of Third Avenue and Jo Johnston Street, then proceeding in a southwesterly direction along Jo Johnston Street to the intersection of Jo Johnston Street and James Robertson Parkway, thence proceeding in a northwesterly, westerly and southwesterly and southerly direction along the route of James Robertson Parkway to the intersection of James Robertson Parkway and Union Street, thence

proceeding along Union Street in a northeasterly direction to the intersection of Union Street and Fourth Avenue, thence proceeding in a northwesterly direction along Fourth Avenue to the intersection of Deadrick Street and Fourth Avenue, thence proceeding in a northeasterly direction along Deadrick Street to the intersection of Deadrick Street and Third Avenue.

Provided, however, that the provisions of this section shall not apply to individuals or organizations soliciting for a bona fide charitable or religious purpose when such individual or organization shall have been approved and granted either a charitable solicitations permit or a religious registration by the metropolitan charitable solicitations board, or when such individual or organization shall have been exempted from any such requirements.

B. The provisions of this section shall not be construed to limit, abridge or otherwise abrogate any other requirement established by any other ordinance concerning licenses or permits which may be required to be obtained before any such sale or offering for sale of any of the articles enumerated in subsection A of this section may take place. Should the requirements of this section be more stringent than the requirements of any other ordinance which may relate to the sale or offering for sale of the goods enumerated in subsection A of this section, and within the area in which such sale or offering for sale is proscribed, then the provision of this section shall prevail.

C. Any person violating any of the provision of this section shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than twenty-five dollars nor more than fifty dollars. Each sale or offering for sale which occurs in violation of this section shall be deemed a separate offense. (Ord. 96-338 § 1, 1996; prior code § 23-1-1)

6.32.030 Municipal auditorium—Disclosure of admission charge.

Any person renting the municipal auditorium for the purposes of retail sales shall be required to disclose any admission charge to the municipal auditorium if any fee or charge is imposed, and the amount of the fees or charges shall be disclosed in all handbills, newspapers, radio and television advertising and shall be conspicuously posted at the municipal auditorium. (Prior code § 23-1-2)

6.32.040 Nashville Arena—Area regulations.

A. 1. The sale or offering for sale of any food, goods or personal property is prohibited, within the area specified by this subsection, on any date whereon an event has been duly scheduled in the Nashville Arena. The prohibition includes all times used for preparation and removal of any material before and after the event and all times during the event. Such sale or offering for sale of food, goods or personal property is prohibited upon the streets and sidewalks in the area of the metropolitan government surrounding the Nashville Arena, and more particularly described as follows:

Beginning at the northeast corner of Broadway and 5th Avenue South and proceeding south along the east side of 5th Avenue South to the southeast corner of Demonbreun Street and 5th Avenue South, thence proceeding west along the southern side of Demonbreun Street to the southwest corner of Demonbreun Street and 6th Avenue South, thence proceeding north along the western side of 6th Avenue South to the northwest corner of 6th Avenue South and Broadway, thence proceeding east along the northern side of Broadway to the northeast corner of Broadway and 5th Avenue South.

2. This subsection shall not apply to individuals soliciting for a bona fide charitable or religious purpose when such individual or organization shall have been approved and granted either a charitable solicitations permit or a religious registration by the metropolitan charitable solicitations board, or when such individual or organization shall have been exempted from any such requirements. Nor shall the provisions of this section apply to any individuals while in the process of exercising any lawful right of speech or assembly protected by the Constitution of the United States and the State of Tennessee.

B. The provisions of this section shall not be construed to limit, abridge or otherwise abrogate any other requirement established by any other ordinance concerning licenses or permits which may be required to be obtained before any such sale or offering for sale of any goods referenced in subsection A of this section which may take place. Should the requirements of this section be more stringent than the requirements of any other ordinance which may relate to the sale or offering for sale of any goods referenced in subsection A of this section and within the area in which such sale or offering for sale is proscribed, then the provisions of this section shall prevail.

C. Any person violating any of the provisions of this section shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than twenty-five dollars nor more than fifty dollars. Each sale or offering for sale which occurs in violation of this section shall be deemed a separate offense. (Ord. 96-569 § 1, 1996)

6.32.050 Ryman Auditorium—Area regulations.

A. 1. The sale or offering for sale of any goods or personal property, including but not limited to food, candy, confections, programs, books, pictures, tickets, records, tee shirts, lights and other novelties, or any and all other articles of personal property whatsoever by any person, is prohibited, within the area specified by this subsection on any date whereon an event has been duly scheduled in the Ryman Auditorium. The prohibition includes all times used for preparation and removal of any material before and after the event and all times during the event. Such sale or offering for sale of goods or personal property is prohibited upon the streets and sidewalks in the area of the metropolitan government surrounding the Ryman Auditorium, and more particularly described as follows:

Beginning at the eastern margin and sidewalk of Opry Place adjacent to the Ryman Auditorium and proceeding in a southern direction along Opry Place to the intersection of Opry Place and Alley No. 55, thence proceeding along Alley No. 44 in an easterly direction to the intersection of Alley No. 44 and Fourth Avenue North, then proceeding northerly along the western side of Fourth Avenue North to the intersection of Fourth Avenue North and Commerce Street.

2. This subsection shall not apply to individuals soliciting for a bona fide charitable or religious purpose when such individual or organization shall have been approved and granted either a charitable solicitations permit or a religious registration by the metropolitan charitable solicitations board, or when such individual or organization shall have been exempted from any such requirements. Nor shall the provisions of this section apply to any individuals while in the process of exercising any lawful right of speech or assembly protected by the Constitution of the United States and the State of Tennessee.

B. The provisions of this section shall not be construed to limit, abridge or otherwise abrogate any other requirement established by any other ordinance concerning licenses or permits which may be required to be obtained before any such sale or offering for sale of any goods referenced in subsection A of this section which may take place. Should the requirements of this section be more stringent than the requirements of any other ordinance which may relate to the sale or offering for sale of any goods referenced in subsection A of this section and within the area in which such sale or offering for sale is proscribed, then the provisions of this section shall prevail.

C. Any person violating any of the provision of this section shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than twenty-five dollars nor more than fifty dollars. Each sale or offering for sale which occurs in violation of this section shall be deemed a separate offense. (Ord. BL2017-658 § 1, 2017)

6.32.060 Tennessee Performing Arts Center—Area regulations.

A. 1. The sale or offering for sale of any goods or personal property, including but not limited to food, candy, confections, programs, books, pictures, tickets, records, tee shirts, lights and other novelties, or any and all other articles of personal property whatsoever by any person, is prohibited, within the area specified by this subsection on any date whereon an event has been duly scheduled in the Tennessee Performing Arts Center. The prohibition includes all times used for preparation and removal of any material before and after the event and all times during the event. Such sale or offering for sale of goods or personal property is prohibited upon the streets and sidewalks in the area of the metropolitan government surrounding the Tennessee Performing Arts Center, and more particularly described as follows:

Beginning at the northwest corner of Union Street and Fifth Avenue North and proceeding in a west-southwesterly direction along the northerly margin and sidewalk of Union Street adjacent to the Tennessee Performing Arts Center to the northeast corner of Union Street and Sixth Avenue North, thence proceeding in a northwesterly direction along the easterly margin and sidewalk of Sixth Avenue North adjacent to the Tennessee Performing Arts Center to the southern side of the intersection of Sixth Avenue North and Deaderick Street, thence proceeding in an east-northeasterly direction along the southern margins and sidewalks of Deaderick Street to the southwest corner of the intersection of Fifth Avenue North and Deaderick Street, thence proceeding in a south-southeasterly direction along the westerly margin and sidewalk of Fifth Avenue North to the northwest corner of Union Street and Fifth Avenue North.

2. This subsection shall not apply to individuals soliciting for a bona fide charitable or religious purpose when such individual or organization shall have been approved and granted either a charitable solicitations permit or a religious registration by the metropolitan charitable solicitations board, or when such individual or organization shall have been exempted from any such requirements. Nor shall the provisions of this section apply to any individuals while in the process of exercis-

ing any lawful right of speech or assembly protected by the Constitution of the United States and the State of Tennessee.

B. The provisions of this section shall not be construed to limit, abridge or otherwise abrogate any other requirement established by any other ordinance concerning licenses or permits which may be required to be obtained before any such sale or offering for sale of any goods referenced in subsection A of this section which may take place. Should the requirements of this section be more stringent than the requirements of any other ordinance which may relate to the sale or offering for sale of any goods referenced in subsection A of this section and within the area in which such sale or offering for sale is proscribed, then the provisions of this section shall prevail.

C. Any person violating any of the provision of this section shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than twenty-five dollars nor more than fifty dollars. Each sale or offering for sale which occurs in violation of this section shall be deemed a separate offense. (Ord. BL2017-658 § 1, 2017)

6.32.070 War Memorial Auditorium—Area regulations.

A. 1. The sale or offering for sale of any goods or personal property, including but not limited to food, candy, confections, programs, books, pictures, tickets, records, tee shirts, lights and other novelties, or any and all other articles of personal property whatsoever by any person, is prohibited, within the area specified by this subsection on any date whereon an event has been duly scheduled in the War Memorial Auditorium. The prohibition includes all times used for preparation and removal of any material before and after the event and all times during the event. Such sale or offering for sale of goods or personal property is prohibited upon the streets and sidewalks in the area of the metropolitan government surrounding the War Memorial Auditorium, and more particularly described as follows:

Beginning at the northeast corner of Union Street and Seventh Avenue North and proceeding in a north-northwesterly direction along the easterly margin and sidewalk of Seventh Avenue North adjacent to the War Memorial Auditorium to the southeast corner of Charlotte Avenue and Seventh Avenue North, thence proceeding in a easterly direction along the southerly margin and sidewalk of Charlotte Avenue adjacent to the War Memorial Auditorium to the western side of the intersection of Sixth Avenue North and Charlotte Avenue, thence proceeding in a south-southeasterly direction along the western margins and sidewalks of Sixth Avenue North to the northwest corner of the intersection of Sixth Avenue North and Union Street, thence proceeding in a westerly direction along the northerly margin and sidewalk of Union Street to the northeast corner of Union Street and Seventh Avenue North.

2. This subsection shall not apply to individuals soliciting for a bona fide charitable or religious purpose when such individual or organization shall have been approved and granted either a charitable solicitations permit or a religious registration by the metropolitan charitable solicitations board, or when such individual or organization shall have been exempted from any such requirements. Nor shall the provisions of this section apply to any individuals while in the process of exercising any lawful right of speech or assembly protected by the Constitution of the United States and the State of Tennessee.

B. The provisions of this section shall not be construed to limit, abridge or otherwise abrogate any other requirement established by any other ordinance concerning licenses or permits which may be required to be obtained before any such sale or offering for sale of any goods referenced in subsection A of this section which may take place. Should the requirements of this section be more stringent than the requirements of any other ordinance which may relate to the sale or offering for sale of any goods referenced in subsection A of this section and within the area in which such sale or offering for sale is proscribed, then the provisions of this section shall prevail.

C. Any person violating any of the provisions of this section shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than twenty-five dollars nor more than fifty dollars. Each sale or offering for sale which occurs in violation of this section shall be deemed a separate offense. (Ord. BL2017-658 § 1, 2017)

6.32.080 Ascend Amphitheater—Area regulations.

A. 1. The sale or offering for sale of any goods or personal property, including but not limited to food, candy, confections, programs, books, pictures, tickets, records, tee shirts, lights and other novelties, or any and all other articles of personal property whatsoever by any person, is prohibited, within the area specified by this subsection on any date whereon an event has been duly scheduled in the Ascend Amphitheater. The prohibition includes all times used for preparation and removal of any material before and after the event and all times during the event. Such sale or offering for sale of goods or personal property is prohibited upon the streets and

sidewalks in the area of the metropolitan government surrounding the Ascend Amphitheater, and more particularly described as follows:

Beginning at the northwest corner of Demonbreun Street and First Avenue South and proceeding in a southerly direction along the eastern margin and sidewalk of First Avenue South adjacent to the Ascend Amphitheater to the northeast corner of the intersection of Korean Veterans Boulevard and First Avenue South, thence proceeding in an east-northeasterly direction along the northern margin and sidewalk of Korean Veterans Boulevard to the Cumberland River.

2. This subsection shall not apply to individuals soliciting for a bona fide charitable or religious purpose when such individual or organization shall have been approved and granted either a charitable solicitations permit or a religious registration by the metropolitan charitable solicitations board, or when such individual or organization shall have been exempted from any such requirements. Nor shall the provisions of this section apply to any individuals while in the process of exercising any lawful right of speech or assembly protected by the Constitution of the United States and the State of Tennessee.

B. The provisions of this section shall not be construed to limit, abridge or otherwise abrogate any other requirement established by any other ordinance concerning licenses or permits which may be required to be obtained before any such sale or offering for sale of any goods referenced in subsection A of this section which may take place. Should the requirements of this section be more stringent than the requirements of any other ordinance which may relate to the sale or offering for sale of any goods referenced in subsection A of this section and within the area in which such sale or offering for sale is proscribed, then the provisions of this section shall prevail.

C. Any person violating any of the provision of this section shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than twenty-five dollars nor more than fifty dollars. Each sale or offering for sale which occurs in violation of this section shall be deemed a separate offense. (Amdt. 1 to Ord. BL2017-658 § 1, 2017; Ord. BL2017-658 § 1, 2017)

6.32.090 First Tennessee Park—Area regulations.

A. 1. The sale or offering for sale of any goods or personal property, including but not limited to food, candy, confections, programs, books, pictures, tickets, records, tee shirts, lights and other novelties, or any and all other articles of personal property whatsoever by any person, is prohibited, within the area specified by this subsection on any date whereon an event has been duly scheduled in First Tennessee Park. The prohibition includes all times used for preparation and removal of any material before and after the event and all times during the event. Such sale or offering for sale of goods or personal property is prohibited upon the streets and sidewalks in the area of the metropolitan government surrounding First Tennessee Park, and more particularly described as follows:

Beginning at the southeasterly corner of Junior Gilliam Way and Fifth Avenue North, and proceeding in a southeasterly direction along the easterly margin and sidewalk of Fifth Avenue North adjacent to First Tennessee Park to the northeast corner of Fifth Avenue North and Harrison Street, thence proceeding in a northeasterly direction along the northerly margin and sidewalk of Harrison Street adjacent to First Tennessee Park to the northwestern side of Harrison Street and Third Avenue North, then proceeding northwesterly along the western margins and sidewalks of Third Avenue North adjacent to First Tennessee Park to the southwestern side of Third Avenue North and Junior Gilliam Way, thence proceeding in a southwesterly direction along the southern margin and sidewalk of Junior Gilliam Way adjacent to First Tennessee Park to the southeasterly corner of Junior Gilliam Way and Fifth Avenue North.

2. This subsection shall not apply to individuals soliciting for a bona fide charitable or religious purpose when such individual or organization shall have been approved and granted either a charitable solicitations permit or a religious registration by the metropolitan charitable solicitations board, or when such individual or organization shall have been exempted from any such requirements. Nor shall the provisions of this section apply to any individuals while in the process of exercising any lawful right of speech or assembly protected by the Constitution of the United States and the State of Tennessee.

B. The provisions of this section shall not be construed to limit, abridge or otherwise abrogate any other requirement established by any other ordinance concerning licenses or permits which may be required to be obtained before any such sale or offering for sale of any goods referenced in subsection A of this section which may take place. Should the requirements of this section be more stringent than the requirements of any other ordinance which may relate to the sale or offering for sale of any goods referenced in subsection A of this

section and within the area in which such sale or offering for sale is proscribed, then the provisions of this section shall prevail.

C. Any person violating any of the provisions of this section shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than twenty-five dollars nor more than fifty dollars. Each sale or offering for sale which occurs in violation of this section shall be deemed a separate offense. (Ord. BL2017-658 § 1, 2017)

Chapter 6.40

RESERVED*

*Editor's note—Ord. BL2012-261, § 8, adopted Oct. 16, 2012, repealed Ch. 6.40, §§ 6.40.010—6.40.050, which pertained to motion picture projectionists and derived from prior Code §§ 14-1-101—14-1-105.

Chapter 6.42

AUTOMOBILE REPAIR AND SERVICE

Sections:

6.42.010	**Definitions.**
6.42.020	**Records required.**
6.42.030	**Limitation on storage of automobiles.**
6.42.040	**Violations.**

6.42.010 Definitions.

"Automobile" means any motor vehicle used for the transportation of persons.

"Automobile repair or service" means the general repair, adjusting, overhauling, removing, replacing, rebuilding, reconditioning, or servicing of automobiles and engines, including, but not limited to, the following:

1. Body, frame or fender straightening or repair;
2. New tire services and sales;
3. The reconditioning, repairing, sale, mounting, or installing of any used tires;
4. Welding of automobile frames or parts;
5. Automobile painting;
6. Automobile upholstery work;
7. Collision repair;
8. Oil change and lubrication;
9. Cooling, electrical, fuel and exhaust system replacement and repairs;
10. Wheel alignment and balancing;
11. Brake adjustment, relining and repairs;
12. Muffler repair and replacement. (Ord. BL2010-715 § 1, 2010)

6.42.020 Records required.

A. Every person, firm, corporation, agency, or business performing automobile repairs or service shall maintain the following written documentation for each vehicle to be serviced or repaired:

1. The name and address of the customer;
2. The date the automobile was received for repairs or service;
3. The year, make, model and vehicle identification number of the automobile;
4. The odometer reading on the date the automobile was brought in for repairs or service; and
5. The license plate number of the motor vehicle.

B. Such records shall be retained for six months and shall be available for inspection by the metropolitan police department and department of codes administration during all regular business hours. (Ord. BL2010-715 § 1, 2010)

6.42.030 Limitation on storage of automobiles.

No vehicle to be repaired or serviced shall remain on the premises more than forty-five days, as provided in Section 17.04.060.B of the Metropolitan Code. (Ord. BL2010-715 § 1, 2010)

6.42.040 Violations.

Violations of this chapter shall result in a civil penalty in the amount of fifty dollars per violation, with each and every violation constituting a separate and distinct offense. (Ord. BL2010-715 § 1, 2010)

Chapter 6.44

MOVING COMPANIES

Sections:

6.44.010 Reporting requirements.

6.44.010 Reporting requirements.

A. All persons owning or operating any moving van, furniture car or any other vehicle, who shall haul or move or cause to be hauled or moved any article of household goods, furniture, pianos or personal effects of any resident of the area of the metropolitan government changing the place of his residence, or moving such articles or personal property to a place for storage or to a common carrier for transportation, shall make a report thereof to the chief of police upon report blanks which shall be furnished by the chief of police. Such reports shall contain generally the character of the property so moved, the full name of the owner or person in possession of or having the custody thereof, the address from which and to which such hauling or moving was done, the date thereof and the name of the owner and person in charge of such vehicle. Such report shall be filed within ten days after completion of such hauling or moving, where such property is delivered to a common carrier. The name and address of the consignee shall also be given in such report.

B. It shall be the duty of the chief of police to furnish the blanks necessary for making such reports, and to have the information given on such reports transcribed upon filing cards, which cards shall be kept in alphabetical order in a card filing system. Such records shall be open to public inspection.

C. It is unlawful for any person procuring the removal of any of the property herein described to give to the owner or operator of any vehicle employed to haul such property a fictitious name or to refuse to give the correct name of the owner or party in possession of such property or to wilfully deceive him as to same. (Prior code § 29-1-42)

Chapter 6.48

PAWNBROKERS AND SECONDHAND DEALERS

Sections:

6.48.010	**Register.**
6.48.020	**Requirements before resale of article.**
6.48.030	**Daily reports.**

6.48.010 Register.

A. It shall be the duty of all persons dealing in the purchase, sale or exchange of secondhand or antique jewelry, watches, diamonds or other precious stones, cutlery, old gold, silver, platinum or other precious metals, or any other secondhand manufactured articles, composed wholly or in part of gold, silver, platinum or other precious metals, to keep a book in which every article received by them in the course of their business shall be registered, and in which shall be given as minute a description of every article as is possible, including the maker's name and number of every article so received by them. The name, age, sex, color, residence, driver's license number and general description of each and every individual selling or exchanging such articles shall be taken and entered in the register.

B. The register shall at all times be kept at the place of business of every person engaging in the business mentioned in subsection A of this section. Members of the police department shall be allowed free access to the register, and the person shall give to such officers all information in his possession concerning such articles and all persons selling or exchanging the same. (Prior code § 31-1-1 (a))

6.48.020 Requirements before resale of article.

All persons engaging in business as described in Section 6.48.010 shall retain any article received in the same state or condition in which it was received and shall not commingle it with other articles separately received, and shall make it available for examination by members of the police department, for a period of seven days before a resale or exchange, unless written permission is obtained from the chief of police. (Prior code § 31-1-1 (b))

6.48.030 Daily reports.

A. All persons engaging in business as described in Section 6.48.010 shall furnish to the chief of police daily reports at his office, showing fully the name, age, sex, color, residence, driver's license number and general description of each person who shall have sold or exchanged any article during the preceding day, together with a full description of the articles sold or exchanged by such person, including the number of each article bearing a number, and the day and hour of the transaction.

B. Every person engaging in such business shall keep duplicates of such reports in a well-bound book or register, which book or register shall at all times be subject to the inspection of members of the police department. Any person intending to engage in business as described in Section 6.48.010 who will not operate that business at an established and permanent location shall give the chief of police at least seventy-two hours' prior notice of the location and date and hours of the operation of such business. (Prior code § 31-1-1 (c))

Chapter 6.52

PLUMBERS, AND PLUMBING AND SEPTIC TANK CONTRACTORS

Sections:

Article I. Plumbers

6.52.010 Classifications—Established.
6.52.020 Classifications—Defined.
6.52.030 Examination, licensing and registration required.
6.52.040 Application for examination and licensing.
6.52.050 Examination—Notice.
6.52.060 Examination—Conducting authority—Type.
6.52.070 Examination—Failure to appear.
6.52.080 Reexamination.
6.52.090 License—Issuance requirements.
6.52.100 Fees—Examination, licensing and renewal.
6.52.110 License—Expiration and renewal—Penalty.
6.52.120 License—Revocation and suspension—Penalties—Inspections.

Article II. Plumbing Contractors

6.52.130 Metropolitan plumbing contractor defined.
6.52.140 Registration and bonding required.
6.52.150 Registration and bonding conditions.
6.52.160 Employment requirements.
6.52.165 Vehicle requirements.
6.52.170 Work stoppage order.
6.52.180 Appeal from work stoppage order.

Article III. Septic Tank and Overflow Contractors

6.52.190 Septic tank and overflow contractor defined.
6.52.200 Registration required.
6.52.210 Registration—Fees and expiration.
6.52.220 Bond required.
6.52.230 Examination required—Fee.

Article I. Plumbers

6.52.010 Classifications—Established.

A. For the purposes of this chapter and Chapters 2.92 and 16.12, every person engaged in the business of plumbing or in the performance of any plumbing work within the metropolitan government area shall be licensed by the board of plumbing examiners and appeals in one of the following classifications:

1. Metropolitan master plumber.

2. Metropolitan journeyman plumber.

3. Metropolitan apprentice plumber.

B. For purposes of this chapter, "plumbing work" means the construction, renovation, installation, alteration, extension, removal, reparation, maintenance, or servicing, of any plumbing system.

C. Nothing in this chapter shall apply to plumbing work performed by persons at or in their own residences. (Amdt. 1 to Ord. BL2008-292 § 1, 2008; Ord. BL2008-292 § 1, 2008; Ord. BL2004-178 § 3, 2004)

6.52.020 Classifications—Defined.

For the purposes of this chapter and Chapters 2.92 and 16.12, the classifications of plumbers shall be defined as follows:

"Metropolitan master plumber" means an individual who has successfully completed the required master plumber's examination and holds a current and valid metropolitan master plumber's license duly issued by the metropolitan board of plumbing examiners and appeals.

"Metropolitan journeyman plumber" means an individual who has successfully completed the required journeyman plumber's examination and holds a current and valid journeyman plumber's license duly issued by the board of plumbing examiners and appeals; one who is regularly employed as a journeyman and works under the direction and supervision of a metropolitan master plumber.

"Metropolitan apprentice plumber" means an individual who holds a current and valid metropolitan apprentice plumber's license duly issued by the board of plumbing examiners and appeals; one who is regularly employed as an apprentice by a registered and bonded metropolitan plumbing contractor and who works at the trade of plumbing under the direct supervision and in the immediate presence of a metropolitan master or journeyman plumber; and one who is enrolled in an apprenticeship program registered with the U.S. Department of Labor, Bureau of Apprenticeship and Training in accordance with the requirements of 29 C.F.R. § 29, or any nationally accredited apprenticeship program, and consists of, at a minimum, eight thousand hours of documented practical experience combined with a minimum of six hundred hours of classroom and/or shop instruction in the plumbing trade. (Ord. BL2004-178 §§ 1 (part), 4, 2004; prior code § 33-1-61)

6.52.030 Examination, licensing and registration required.

It is unlawful for any person to engage in the business of plumbing and/or to do or perform any plumbing work as defined in Section 6.52.010, as a master plumber, journeyman or apprentice plumber, without first having been examined, licensed and registered as such by the board of plumbing examiners and appeals. (Ord. BL2008-292 § 2, 2008; Ord. BL2004-178 §§ 2 (part), 5, 2004)

6.52.040 Application for examination and licensing.

A. It shall be the duty of every person engaged in or desiring to engage in the business of plumbing, to do or perform any plumbing work or to make any plumbing installation as a master plumber, journeyman or apprentice plumber to make application to the board of plumbing examiners and appeals for an examination and issuance of a license. Application for an examination and license shall be made on forms provided by the director of codes administration and shall be accompanied by the required examination fee.

B. In addition to the requirements in subsection A of this section, each applicant must furnish evidence that he has at least three years' experience in the next lower classification. A degree in civil or mechanical engineering may be accepted in lieu of the experience requirement. (Ord. BL2004-178 §§ 1 (part), 2 (part), 2004; Ord. 94-1226 § 7, 1994; prior code § 33-1-63)

6.52.050 Examination—Notice.

Each applicant for examination and licensing as a master plumber, journeyman or apprentice plumber shall be notified, in writing, by the secretary of the board of plumbing examiners and appeals as to the time and place of such examinations, not less than seven days prior to the date scheduled for such examination. (Ord. BL2004-178 § 2 (part), 2004; prior code § 33-1-64)

6.52.060 Examination—Conducting authority—Type.

A. An examination of each applicant for a master plumber's journeyman or apprentice plumber's license shall be conducted by the board of plumbing examiners and appeals at a time and place determined by such board. The examination may be written or oral or a combination of both, at the discretion of the board, and shall, in each instance, be of such nature as to satisfy the board as to the applicant's proficiency in the art of plumbing and plumbing installations and his knowledge of the provisions and material requirements of this chapter, Chapters 2.92 and 16.12, and any subsequent amendments made thereto, as such are related to the applicant's request for licensing; except, that no written examination shall be required of any applicant for a metropolitan apprentice plumber's license.

B. Notwithstanding any other provision to the contrary, any person who is unable to read and write shall be given an oral examination for master plumber, journeyman, or apprentice plumber's license. (Ord. BL2004-178 §§ 1 (part), 2 (part), 2004; prior code § 33-1-65)

6.52.070 Examination—Failure to appear.

The failure of an applicant to appear before the board of plumbing examiners and appeals for examination, at the time and place scheduled for examination, shall not be construed as denying any applicant the right to request a rescheduling of such examination at a later date; except, that no application for examination and licensing shall be held pending by the board, except for just cause, for more than ninety days following receipt of such application. In the event an applicant, after due notice, shall fail to appear before the board for examination, during such ninety-day period, as set forth in this section, the application shall be rejected, the applicant shall be notified of the action taken by the board and the examination fee shall be forfeited. (Ord. BL2004-178 § 2 (part), 2004; prior code § 33-1-66)

6.52.080 Reexamination.

Any applicant for examination and licensing as a master plumber or journeyman plumber who shall fail to pass the examination as required by the board of plumbing examiners and appeals may not apply for reexamination within thirty days following the date of such examination. (Ord. BL2004-178 § 2 (part), 2004; Ord. 89-828 § 3, 1989; prior code § 33-1-67)

6.52.090 License—Issuance requirements.

The board of plumbing examiners and appeals shall issue a license in each of the following classifications when the applicant has fulfilled the following requirements:

A. A metropolitan master plumber's license shall be issued to every applicant who makes proper application for such license, successfully completes the required master plumber's examination and pays the required master plumber's licensing fee.

B. A metropolitan journeyman plumber's license shall be issued to every applicant who makes proper application for such license, successfully completes the required journeyman plumber's examination, pays the required journeyman plumber's licensing fee and submits satisfactory evidence to the board that he is or will be regularly employed as a journeyman plumber by a duly

registered and bonded metropolitan plumbing contractor and works under the direction and supervision of a licensed master plumber.

C. A metropolitan apprentice plumber's license shall be issued to every applicant who pays the required apprentice plumber's licensing fee.

D. Notwithstanding any other provision of this article to the contrary, any master plumber, journeyman plumber, or apprentice plumber who possesses a current and valid license issued in accordance with the provisions of Article I of Chapter 6.52 in effect at the time of the enactment of the ordinance requiring the licensing of plumbers, shall retain and be entitled to all of the rights and privileges of a licensed master plumber, licensed journeyman plumber, or licensed apprentice plumber, and shall be entitled to renew such license. (Ord. BL2004-178 §§ 1 (part), 2 (part), 6, 2004; Ord. 89-828 § 4, 1989; prior code § 33-1-68)

6.52.100 Fees—Examination, licensing and renewal.

A. The fees for examination and licensing of a master plumber, journeyman and apprentice plumber shall be as follows:

Classification	Examination Fee	Original License	Renewal License
Master plumber	$50.00	$100.00	$100.00
Journeyman plumber	50.00	25.00	25.00
Apprentice plumber	—	5.00	5.00

B. Renewal licenses for each classification shall be issued free of charge to any license holder over sixty-five years of age. (Ord. BL2004-178 § 2 (part), 2004; Ord. 94-1226 § 9, 1994; prior code § 33-1-69)

6.52.110 License—Expiration and renewal—Penalty.

A. Each license issued by the board of plumbing examiners and appeals shall expire on the last day of December following issuance and shall become invalid unless renewed. Such license shall be renewed annually and recorded in the office of the director of the department of codes administration, on or before the first day of January of each year. Such records shall be open to public inspection during the normal working hours of the department.

B. There shall be in addition to the renewal fee set out in Section 6.52.100 a penalty of ten dollars per month for master plumbers or septic tank and overflow installers and five dollars per month for journeyman plumbers for each month in arrears past the expiration date of the license. (Ord. BL2004-178 § 1 (part), 2004; Ord. 94-1226 § 8, 1994; prior code § 33-1-70)

6.52.120 License—Revocation and suspension—Penalties—Inspections.

A. The board of plumbing examiners and appeals shall revoke or suspend a license issued to any master plumber, journeyman, or apprentice plumber and may impose penalties including but not limited to the issuance of stop work orders, fines, and suspension of work privileges upon positive proof that such person or persons:

1. Knowingly violated the provisions of this chapter, Chapters 2.92 and 16.12, or the rules and regulations of the board;

2. Practiced fraud or deception in making application for or obtaining such license;

3. Is incompetent to perform a service to the public as a licensed plumber;

4. Permitted his license to be used, directly or indirectly, by another to obtain or perform plumbing work or services;

5. Is guilty of such other unprofessional or dishonorable conduct of such nature as to deceive or defraud the public;

6. Permitting himself or his company to represent itself as in the business or art of plumbing unless it employs a master plumber;

7. Knowingly took out a permit for work to be done by persons without a license issued by the board of plumbing examiners and appeals to engage in plumbing work, including the construction, renovation, installation, alteration, extension, removal, reparation, maintenance, or servicing of any plumbing installation for which a permit is required, as a master plumber, journeyman or apprentice plumber.

B. No action of the board to suspend or revoke a license shall become final until the alleged offender has been given an opportunity to appear before the board to show cause as to why such action should not be taken.

C. Notice, in writing, of the proposed action of the board to revoke or suspend a license shall be given to the holder of such license, stating the specific charges upon which such action is based. The notice shall stipulate that a hearing will be scheduled at a time and place set by the board for the aggrieved party to show cause why such action should not be made final. Such hearing shall not be held less than forty-eight hours following notice to the aggrieved party. Failure to appear before the board to answer the specific charges set forth in the notice shall be deemed just cause for final revocation or suspension of a license.

D. In the event a license is revoked by the board, an application for reinstatement of such license shall not be accepted by the board within twelve months after the date of such revocation.

E. The department of codes administration shall have the authority to enforce the provisions of this chapter through the use of initial work-site inspections, scheduled work-site inspections, and unannounced work-place inspections. (Ord. BL2004-178 §§ 1 (part), 2 (part), 7, 2004; prior code § 33-1-71)

Article II. Plumbing Contractors

6.52.130 Metropolitan plumbing contractor defined.

For the purposes of this chapter and Chapters 2.92 and 16.12, a "metropolitan plumbing contractor" means and shall be defined as one of the following:

A. An individual holding a current and valid metropolitan master plumber's certificate duly issued by the board of plumbing examiners and appeals; who holds a current and valid contractor's license issued by the Tennessee State Board for Licensing Contractors, when required; who has been duly registered as a metropolitan plumbing contractor by the department of codes administration and has secured the required contractor's privilege license from the proper licensing authority of the metropolitan government;

B. A person, firm, association or corporation established to do business as a metropolitan plumbing contractor, employing the full-time services of an individual holding a current and valid master plumber's certificate duly issued by the board of plumbing examiners and appeals; who holds a current and valid contractor's license issued by the Tennessee State Board for Licensing Contractors, when required; who has been duly registered as a metropolitan plumbing contractor by the department of codes administration and has secured the required contractor's privilege license from the proper licensing authority of the metropolitan government. (Prior code § 33-1-72)

6.52.140 Registration and bonding required.

A. It shall be the duty of every person desiring to engage in the business of plumbing as a metropolitan plumbing contractor to register and post bond, as required, with the department of codes administration.

B. It shall be the responsibility of the plumbing contractor to furnish to the department of codes administration a permit bond in the amount of forty thousand dollars conditioned to conform to the requirements of this chapter and all applicable laws, ordinances, rules, and regulations of the metropolitan government relating to work which is performed by the principal pursuant to a permit issued under this bond, or for work performed by the principal for which a permit should have been obtained prior to the commencement of such activity; and to indemnify the metropolitan government and property owners against any and all loss suffered by them by reason of the failure of such contractor to comply with such laws, ordinances, rules and regulations. Such bond shall be continuous and may not be canceled without at least ten days' prior notice, in writing, to the director of codes administration. The liability of the surety shall continue to attach to work performed pursuant to any permit issued prior to the termination date of the bond even if the noncomplying act should occur after the termination date of the bond. The liability of the surety for any and all claims, suits or actions under this bond shall not exceed the bond penalty of forty thousand dollars. Regardless of the number of years this bond may remain in force, the liability of the surety shall not be cumulative and the aggregate liability of the surety for any and all claims, suits or actions under this bond shall not exceed forty thousand dollars. The bond shall be issued by a U.S. Treasury-listed corporate surety or a Tennessee domestic insurance company on forms provided by the department of codes administration.

C. It shall be the responsibility of the plumbing contractor to furnish to the department of codes administration a certificate of general liability insurance issued by a Tennessee-licensed company which provides a minimum of three hundred thousand dollars per occurrence with combined single limits for bodily injury and property damage coverage. The certification of insurance must be submitted prior to renewal of the metropolitan contractor's certificate holder annual renewal. The insurance may not be canceled without at least thirty days' prior notice, in writing, to the director of codes administration. (Ord. 94-1226 § 2, 1994; prior code § 33-1-73)

6.52.150 Registration and bonding conditions.

A. No person engaged in or desiring to engage in the business of plumbing as a metropolitan plumbing contractor shall be registered or bonded as such by the department of codes administration unless such person holds a current and valid master plumber's certificate duly issued by the board of plumbing examiners and appeals.

B. No person, firm, association or corporation, other than an individual holding a current and valid master plumber's certificate, as set forth in subsection A of this section, engaged in or desiring to engage in the business of plumbing as a metropolitan plumbing contractor, shall be registered or bonded as such by the department of

codes administration unless such person, firm, association or corporation employs the full-time services of an individual holding a current and valid master plumber's certificate duly issued by the board of plumbing examiners and appeals. (Prior code § 33-1-74)

6.52.160 Employment requirements.

A. In the event a metropolitan plumbing contractor, as defined in subsection B of Section 6.52.130, should for any reason dispense with or otherwise fail to retain the full-time services of a certified metropolitan master plumber, then such metropolitan plumbing contractor shall no longer be eligible to obtain plumbing permits until such time as such plumbing contractor shall employ the full-time services of a certified metropolitan master plumber to supervise its work.

B. In all such instances, it shall be the duty of such metropolitan contractor to immediately notify the director of codes administration, in writing, of any change in the status or relationship of any certified master plumber employed.

C. It shall be the duty also of each metropolitan master plumber employed by a metropolitan plumbing contractor to immediately notify the director of codes administration, in writing, of any change in employment or in his relationship with a metropolitan plumbing contractor. (Prior code § 33-1-75)

6.52.165 Vehicle requirements.

A. All vehicles utilized by a metropolitan plumbing contractor and/or the employees thereof shall have conspicuously painted on the sides of said vehicles in a contrasting color the following information:

1. The full name of the firm to which the vehicle belongs, in lettering of at least three inches;

2. The registration number of the metropolitan plumbing contractor, in lettering of at least two inches;

3. The wording "Nashville, Tennessee" in lettering of at least two inches.

B. In the event vehicles are leased by a metropolitan plumbing contractor, such leased vehicles, in lieu of the painting thereon of the information required by the above, may be equipped with securely attached temporary signs placed on both sides thereof which comply with the requirements above. (Ord. 92-208 § 1, 1992)

6.52.170 Work stoppage order.

A. In the event a metropolitan plumbing contractor, as defined in subsection B of Section 6.52.130, shall cease to employ the services of a metropolitan master plumber, the director of codes administration shall notify such plumbing contractor that he shall no longer be entitled to secure permits and that any work authorized and not completed under any permit issued to such contractor shall be stopped within forty-eight hours after notice, subject to an appeal by such contractor to the board of plumbing examiners and appeals within the forty-eight-hour period.

B. Such notice shall be in writing and shall be delivered to such plumbing contractor by registered mail or served personally on such contractor. (Prior code § 33-1-76)

6.52.180 Appeal from work stoppage order.

Upon written notice of an appeal to the board of plumbing examiners and appeals, involving a work stoppage under the circumstances as set forth in Section 6.52.170, the board shall meet in special session and shall take such action as may be deemed necessary to assure that the intent and purposes of this chapter and Chapters 2.92 and 16.12 are complied with. In each such instance, the action of the board shall be final, subject to such relief as the aggrieved party may have at law or in equity. (Prior code § 33-1-77)

Article III. Septic Tank and Overflow Contractors

6.52.190 Septic tank and overflow contractor defined.

A. For the purpose of this article, a "septic tank and overflow contractor" means and shall be defined as any person who sells, installs, repairs and services septic tank and overflow systems or any other in-ground sewage disposal system approved by the metropolitan health department.

B. For the purpose of this chapter and Chapters 2.92 and 16.12, a "septic tank and overflow contractor" means and shall be defined as any person, firm or corporation who engages in the business of contracting for the sale, installation, repair and service of a private sewage disposal system as defined in subsection A of this section. (Prior code § 33-1-78)

6.52.200 Registration required.

It shall be the duty of every person who shall make contracts for the installation, repair, addition or alteration of any private sewage disposal system, for which a permit is required, to register with the director of codes administration, on forms provided by the director of codes administration, providing the business address of the person, the effective date of the conformance bond, the expiration dates of all required privilege licenses and signatures of all persons authorized to make application for permits for such person. (Prior code § 33-1-79)

6.52.210 Registration—Fees and expiration.

Any person registering with the department of codes administration as a septic tank and overflow contractor shall pay a fee of seventy-five dollars each year thereafter. Such registration shall expire on the last day of December following issuance. (Prior code § 33-1-80)

6.52.220 Bond required.

A. It shall be the responsibility of the septic tank and overflow contractor to furnish to the department of codes administration a permit bond in the amount of forty thousand dollars, conditioned to conform to the requirements of this chapter and all applicable laws, ordinances, rules, and regulations of the metropolitan government relating to work which is performed by the principal pursuant to a permit issued under this bond, or for work performed by the principal for which a permit should have been obtained prior to the commencement of such activity; and to indemnify the metropolitan government and property owners against any and all loss suffered by them by reason of the failure of such contractor to comply with such laws, ordinances, rules and regulations. Such bond shall be continuous and may not be canceled without at least ten days' prior notice, in writing, to the director of codes administration. The liability of the surety shall continue to attach to work performed pursuant to any permit issued prior to the termination date of the bond even if the noncomplying act should occur after the termination date of the bond. The liability of the surety for any and all claims, suits or actions under this bond shall not exceed the bond penalty of forty thousand dollars. Regardless of the number of years this bond may remain in force, the liability of the surety shall not be cumulative and the aggregate liability of the surety for any and all claims, suits or actions under this bond shall not exceed forty thousand dollars. The bond shall be issued by a U.S. Treasury-listed corporate surety or a Tennessee domestic insurance company on forms provided by the department of codes administration.

B. It shall be the responsibility of the septic tank and overflow contractor to furnish to the department of codes administration a certificate of general liability insurance issued by a Tennessee-licensed company which provides a minimum of three hundred thousand dollars per occurrence combined single limits for bodily injury and property damage coverage. The certification of insurance must be submitted prior to renewal of the metropolitan contractor's certificate holder annual renewal. The insurance may not be canceled without at least thirty days' prior notice, in writing, to the director of codes administration. (Ord. 94-1226 § 3, 1994)

6.52.230 Examination required—Fee.

The proprietor, partner or officer of such septic tank and overflow contractor shall successfully complete a written examination, administered by the metropolitan board of plumbing examiners and appeals, designed to test the applicant's ability and knowledge in the field of private sewage disposal systems. The board shall certify the results of the applicant's competency to the director of codes administration. Such examination shall be a prerequisite to registration as a septic tank and overflow contractor. The fee to take the examination shall be twenty-five dollars. (Prior code § 33-1-82)

Chapter 6.54

SEXUALLY ORIENTED BUSINESSES

Sections:

6.54.010	**Definitions.**
6.54.020	**Board of licensing for adult entertainment and safety.**
6.54.030	**License required.**
6.54.040	**Application for license.**
6.54.050	**Standards for issuance of license.**
6.54.060	**Permit required.**
6.54.070	**Application for permit.**
6.54.080	**Standards for issuance of a permit.**
6.54.090	**Fees.**
6.54.100	**Display of license or permit.**
6.54.110	**Renewal of license or permit.**
6.54.120	**Hours of operation.**
6.54.130	**Responsibilities of the operator.**
6.54.140	**Prohibitions and unlawful sexual acts.**
6.54.150	**Revocation or suspension of license/permit.**
6.54.160	**Penalties and prosecutions.**
6.54.170	**Invalidity of part.**

6.54.010 Definitions.

For the purpose of this chapter, the words and phrases used in this chapter shall have the following meanings, unless otherwise clearly indicated by the context:

A. "Aggravated rape" means as defined in the Tennessee Code Annotated Section 39-13-502.

B. "Aggravated sexual battery" means as defined in the Tennessee Code Annotated Section 39-13-504.

C. "Booth" means any booth, cubicle, stall, room or compartment which is designed, constructed or used to hold or seat patrons/customers and is designed such that the booth is separated from the common areas of the premises and is used for presenting sexually oriented entertainment including, but not limited to viewing sexually oriented moving pictures or viewing sexually oriented publications by any photographic, electronic, magnetic, digital or other means or medium (including, but not limited to, film, video or magnetic tape, laser disc, cd-rom, books, magazines or periodicals) for observation by patrons therein. "Booth" shall not mean a room or enclosure that is designed, constructed and regularly used to seat more than ten persons.

D. "Crimes of a sexual nature" means the crimes of rape, aggravated rape, aggravated sexual assault, public indecency, statutory rape, rape of a child, sexual exploitation of a minor, indecent exposure, prostitution, patronizing prostitution, promoting prostitution, or crimes committed in a jurisdiction other than Tennessee which, if committed in this state, would have constituted the crimes listed above. In the event that a felony from a jurisdiction other than Tennessee is not a named felony in this state, the elements of the offense shall be used to determine what classification the offense is given.

E. "Current entertainer" means an entertainer performing sexually oriented entertainment within the metropolitan area as of March 1, 1999.

F. "Employee" means any and all persons, including independent contractors, who work in or at or render any services directly related to the operation of a sexually oriented business.

G. "Entertainer" means any person who provides live entertainment within a sexually oriented business as defined in this section, whether or not a fee is charged or accepted for entertainment and whether or not entertainment is provided as an employee or an independent contractor.

H. "Existing sexually oriented business," means a sexually oriented business that is operating within the metropolitan area as of March 1, 1999.

I. "Indecent exposure" means as defined in the Tennessee Code Annotated Section 39-13-511.

J. "Location" means a single site for which only one use and occupancy permit would be required.

K. "Metropolitan area" means the general services district of the Metropolitan Government of Nashville and Davidson County.

L. "Metropolitan council" means the legislative body of the Metropolitan Government of Nashville and Davidson County, Tennessee.

M. "New entertainer" means an entertainer not performing sexually oriented entertainment within the metropolitan area as of March 1, 1999.

N. "New sexually oriented business" means a sexually oriented business not in operation as of March 1, 1999.

O. "Operator" means any person, partnership, limited partnership, joint venture, corporation or any other type of business entity operating, conducting or maintaining a sexually oriented business.

P. "Patronizing prostitution" means as defined in the Tennessee Code Annotated Section 39-13-512.

Q. "Principal business purpose" means a business purpose for which any one of the following applies:

(1) At least thirty-five percent (35%) of the business's displayed merchandise consists of books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, video cassettes, compact discs, digital video discs, slides, or other visual representations, which are characterized by their emphasis upon the display of "specified sexual activities" or "specified anatomical areas";

(2) At least thirty-five percent (35%) of the wholesale value of the business's displayed merchandise consists of the foregoing enumerated items;

(3) At least thirty-five percent (35%) of the retail value of the business's displayed merchandise consists of the foregoing enumerated items;

(4) At least thirty-five percent (35%) of the business's revenues derive from the sale or rental, for any form of consideration, of the foregoing enumerated items;

(5) At least thirty-five percent (35%) of business's interior business space is used for the display, sale, or rental of the foregoing enumerated items;

(6) The business regularly features the foregoing enumerated items, and prohibits access by minors, because of age, to the premises, and advertises itself as offering "adult" or "XXX" or "x-rated" or "erotic" or "sexual" or "pornographic" material on signage visible from a public right-of-way.

R. "Promoting prostitution" means as defined in the Tennessee Code Annotated Section 39-13-512.

S. "Prostitution" means as defined in the Tennessee Code Annotated Section 39-13-512.

T. "Public indecency" means as defined in the Tennessee Code Annotated Section 39-13-511.

U. "Rape" means as defined in the Tennessee Code Annotated Section 39-13-503.

V. "Rape of a child" means as defined in the Tennessee Code Annotated Section 39-13-522.

W. "Sexual battery" means as defined in the Tennessee Code Annotated Section 39-13-505.

X. "Sexual exploitation of a minor" means as defined in the Tennessee Code Annotated Sections 39-17-1003, 39-17-1004 and 39-17-1005.

Y. "Sexually oriented" when used to modify film, movie, motion picture, videocassette, slides, or other photographic reproductions means a film, movie, motion picture videocassette, slides or other photographic reproduction that regularly depicts material which is distinguished or characterized by an emphasis on matter depicting or describing "specified sexual activities" or "specified anatomical areas" offered for observation by the patron(s) on the premises of a sexually oriented business.

Z. "Sexually oriented business/establishment" means any commercial establishment which for a fee or incidentally to another service, regularly presents material or exhibitions distinguished or characterized by an emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas" as defined in this section for observation by patrons therein.

1. "Sexually oriented bookstore" means an establishment which, as one of its principal business purposes, offers for sale books, magazines, other periodicals, or any other items which are distinguished or characterized by their emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas" as defined in this section for observation of the patrons therein; or in conjunction therewith has facilities for the presentation of sexually oriented entertainment, including but not limited to sexually oriented movies, sexually oriented videos, sexually oriented films, or sexually oriented live entertainment, for observation by patrons therein.

2. "Sexually oriented nightclub" means a theater, concert hall, auditorium, nightclub, bar, restaurant, or similar commercial establishment which regularly features live performances that are characterized by any actual or simulated performance of "specified sexual activities" or the exposure of "specified anatomical areas," as defined in this section.

3. "Sexually oriented theater" means an enclosed building in which films, motion pictures, videocassettes, slides, or other photographic reproductions that are distinguished or characterized by an emphasis on depictions of "specified sexual activities" or "specified anatomical areas," as defined in this section, are regularly presented for observation by patrons therein.

4. "Sexually oriented video store" means a commercial establishment which, as one of its principal business purposes offers the sale or rental, or presentation for a fee or incidentally to another service, "sexually oriented videos," as defined in this section; or in conjunction therewith, regularly presents on the premises sexually oriented motion pictures or sexually oriented films, "sexually oriented videos," or sexually oriented live exhibitions which are distinguished or characterized by an emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas" as defined in this section for observation by patrons therein.

a. "Sexually oriented videos" means a video, CD, laser disk, or similar medium with a cover that depicts "specified sexual activities" or "specified anatomical

areas" or a transparent or less than opaque cover through which "specified sexual activities" or "specified anatomical areas" can be viewed.

AA. "Sexually oriented entertainment" means the regular presentation, for a fee or incidentally to another service, of material or exhibitions distinguished or characterized by an emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas" as defined in this section for observation by patrons therein.

BB. "Sexually oriented material" means "sexually oriented entertainment" and/or any material, including films, movies, motion pictures, videocassettes, slides, or other photographic reproductions, which regularly depicts material which is distinguished or characterized by an emphasis on matter depicting or describing "specified sexual activities" or "specified anatomical areas" offered for observation by the patron(s) on the premises of a sexually oriented business.

CC. "Specified anatomical areas" means:

1. Less than completely and opaquely covered:

a. Human genitals, pubic region,

b. Buttocks,

c. Female breasts below a point immediately above the top of the areola; and

2. Human male genitals in a discernibly turgid state, even if completely opaquely covered.

DD. "Specified sexual activities" means:

1. Human genitals in a state of sexual stimulation or arousal;

2. Acts of human masturbation, sexual intercourse or sodomy;

3. Fondling or erotic touching of human genitals, pubic region, buttock or female breasts.

EE. "Statutory rape" means as defined in the Tennessee Code Annotated Section 39-13-506. (Amdt. 1 to Ord. BL2009-538 § 2, 2009; Ord. BL2009-538 § 2, 2009; Ord. BL99-61 §§ 1—5, 2000; Ord. 99-1814 §§ 1—5, 1999; Amdt. 1 § 1 with Ord. 99-1503 §§ 1—3, 1999; Ord. 97-1022 § 1, 1997; amended during 9-97 supplement; Amdt. 7 (part) and Amdt. 3 §§ 1 and 2 with Ord. 97-796 § 2 (part), 1997)

6.54.020 Board of licensing for adult entertainment and safety.

A. A sexually oriented business licensing board is created and designated the metropolitan board of licensing for adult entertainment and safety (herein "board").

B. Membership—Terms.

1. The board shall consist of seven members, who shall have been residents of the metropolitan area for not less than one year, and who shall continue to be eligible so long as they reside in the metropolitan area, to be appointed by the mayor and confirmed by a majority vote of the metropolitan council.

2. At least one of the seven members shall be an attorney, and one of the seven members shall be a health provider.

3. Each member shall be appointed for a term of four years and shall serve until his/her successor is appointed. Any vacancy other than the expiration of terms shall be filled for the unexpired term.

C. Election of Officers—Term. The board shall organize by the election of a chair and a vice-chair, who shall serve for a period of one year or until a successor shall have been chosen. The vice-chair is authorized to act in the place of the chair and in the same capacity as the chair when the chair is unavailable.

D. Meetings—Quorum Required—Minutes and Transcript.

1. The board shall hold two regular meetings each month at a time fixed by the board, and may hold such special meetings as may be necessary.

2. The attendance of at least a majority of the members of the board, not including unfilled positions, shall be required to constitute a quorum for the purpose of transacting business.

3. Minutes shall be kept of the meetings in permanent form and a record shall be kept of the action of the board with respect to every application for a license and/or a permit. The concurring vote of a majority of the members present and voting shall be necessary for the granting, revoking, suspending or any other action involving licenses or permits.

4. No transcript of the proceedings had before the board shall be in any form other than narrative, unless the board shall have been requested to provide for an exact copy of the testimony by an interested party at least twenty-four hours prior to a board meeting. The cost of an exact copy shall be borne by the person requesting the same.

E. Powers and Duties.

1. The board shall have jurisdiction over the licensing, regulating and controlling of all sexually oriented establishments as provided in this chapter, located in the metropolitan area.

2. The board may promulgate such bylaws, rules and regulations not inconsistent with state law, the Metropolitan Charter, or any ordinance, as it deems appropriate for the conducting of its business.

3. The board has the authority to subpoena witnesses to testify before the board.

F. Inspectors—Authority. The board is empowered to employ suitable person(s) as inspectors which inspectors shall not hold any civil service status. The board shall prescribe the duties of such inspectors so as to enforce the applicable provisions of this title.

G. Procedures for Hearings. This section shall apply to all hearings by the board including but not limited to hearings for revocation, suspension or denial of a license/permit.

1. Upon receiving a written request for a hearing, the board shall send the party requesting the hearing a notice stating the time and place of the hearing and the right to be represented by counsel.

2. At the hearing, the party requesting the hearing shall appear on his/her own behalf or be represented by counsel. All witnesses shall be sworn. The chair shall allow the party requesting the hearing to present witnesses on his/her own behalf and to cross-examine all witnesses testifying against him/her.

3. All decisions of the board shall be in writing, setting forth the findings of the board, and shall be signed by the chair or vice-chair.

4. Minutes shall be kept of all proceedings before the board in permanent form and a record shall be kept of the actions of the board with respect to all hearings.

5. A record (which may consist of a tape or similar electronic recording) shall be made of all oral proceedings. The record must be maintained by the board for a period of ninety days. Such record or any part thereof shall be transcribed at the request of any party at such party's expense.

6. The board will arrange for a court reporter to be present at any hearing after an initial adverse administrative decision. (Ord. BL2025-811 §§ 17, 18, 2025; Amdt. 1 with Ord. 99-1814 § 6, 1999; Amdt. 1 § 14 with Ord. 99-1503, 1999; Ord. 97-1022 § 3, 1997; Amdt. 7 (part) with Ord. 97-796 § 2 (part), 1997)

6.54.030 License required.

A. Except as provided in subsection F of this section, from and after March 1, 1999, no sexually oriented business shall be operated or maintained within the metropolitan area without first obtaining a license to operate issued by the board.

B. Any person, partnership, limited partnership, joint venture, corporation or any other type of business entity which desires to operate more than one sexually oriented business/establishment must have a license for each sexually oriented business/establishment.

C. Only one license may be issued for each sexually oriented business location.

D. No license or interest in a license may be transferred to any person, partnership or corporation.

E. It is unlawful for any entertainer or operator to knowingly work in or about, or to knowingly perform any service directly related to the operation of any unlicensed sexually oriented business. It is unlawful for any employee to knowingly work in or about, or to knowingly perform any service directly related to the operation of any unlicensed sexually oriented business while sexually oriented entertainment is being presented.

F. All existing sexually oriented businesses, as defined in Section 6.54.010, must submit an application for a license by March 15, 1999, or cease operations. All existing sexually oriented businesses which apply for a license by March 15, 1999, may continue to operate the sexually oriented business described in the application even if the board votes to deny the application where such denial is appealed to a court in accordance with Section 6.54.040(E)(3). All new sexually oriented businesses, as defined in Section 6.54.010, may submit an application at any time but may not operate until a license is granted except as permitted in Section 6.54.040(E)(4).

G. Any applicant found to have previously violated this chapter by operating or maintaining a sexually oriented business/establishment within the metropolitan area without a license, as evidenced by a judgment of a court, within one year immediately preceding the date of the application shall be ineligible for a license for one year from the date of the judgment. The fact that a trial court's judgment is being appealed shall have no effect on the disqualification of the applicant unless the judgment is stayed. (Ord. 99-1814 §§ 7, 8, 1999; Ord. 99-1503 §§ 4, 5, 1999; Ord. 97-1022 § 5, 1997; Amdt. 7 (part) with Ord. 97-796 § 2 (part), 1997)

6.54.040 Application for license.

A. Application.

1. Any person, partnership, limited partnership, joint venture, corporation or any other type of business entity desiring to secure a license shall make application to the board. The applicant shall file the original application with six copies. The original application shall be dated by the board and held in the files of the board. A copy of the application shall be distributed the next business day by the board to: the police department, the department of codes administration, the health department, and the applicant.

2. Application forms shall be available at the office of the board.

3. The application form shall include all the information indicated in subdivisions (5)(a) through (5)(l) of this subsection.

4. The following persons must be listed in the license application for any sexually oriented business that is a corporate entity of any kind: the registered agent and the name and address of all officers and directors of the corporation, and any stockholder holding a majority controlling percentage of the stock of a corporate applicant and who will be involved in the day-to-day operation and management of the business. The following persons must be listed in the license application for any sexually oriented business that is a partnership, limited partnership, joint venture, or any other type of business: the name and address of all persons who will be involved in the day-to-day operation and management of the business.

5. The applicant shall furnish the following information under oath:

a. Name and address of the applicant, including all aliases (business address is sufficient);

b. Proof of the applicant's date of birth demonstrating that the applicant is at least eighteen years of age;

c. All residential addresses of the applicant for the past three years (for the purpose of facilitating the police investigation into the applicant's criminal background regarding crimes of a sexual nature);

d. Whether the applicant previously operated in this or any other county, city or state under a sexually oriented business/adult entertainment license/permit. Whether the applicant has ever had such a license/permit revoked or suspended, within the last year from the date of application, the reason therefor, and the business entity or trade name under which the applicant operated that was subject to the suspension or revocation;

e. All convictions for crimes of a sexual nature, as defined in Section 6.54.010, punishable as a misdemeanor violation that have occurred within the past two

years. All convictions for crimes of a sexual nature, as defined in Section 6.54.010, punishable as a felony that have occurred within the past five years;

f. All judgments by a court within one year for violations of the metropolitan zoning Section 17.64.260;

g. Fingerprints and two photographs at least two inches by two inches of the applicant (for the purpose of facilitating the police investigation into the applicant's criminal background regarding crimes of a sexual nature);

h. The address of the sexually oriented business to be operated by the applicant;

i. If the applicant is a corporation, the application shall specify the name of the corporation, the date and state of incorporation, the name and address of the registered agent and the name and address of all officers and directors of the corporation, and any stockholder holding a majority controlling percentage of the stock of a corporate applicant and who will be involved in the day-to-day operation of the business;

j. If the applicant is a partnership, joint venture, or any other type of business, the application shall specify the name and address of all persons who will be involved in the day-to-day operation of the business;

k. A statement by the applicant that he/she is familiar with the provisions of this chapter and a statement swearing that information provided on the application is true and accurate.

6. The applicant shall provide the board with his/her application, a diagram, drawn to scale of the premises, including the location and layout of all booths and stages and the location of the clerk/manager's stand or counter. Though the diagram shall be drawn to scale, it does not have to be professionally prepared.

7. If any of the information on the application changes over the course of the time for which the license is issued, including any changes in the physical layout of the premises, the licensee shall inform the board, in writing, of the changes.

B. Inspections and Investigations.

1. The codes department shall, upon receipt of a copy of the application, inspect the premises to insure that the establishment complies with the unique physical layout requirements set out in Section 6.54.050(A)(1), 6.54.050(A)(3) and 6.54.130(C) of this chapter. The health department shall inspect the premises to insure compliance with applicable health code statutes, ordinances, and regulations. The police department shall investigate the applicant's criminal history collecting the applicant's fingerprints and 2 (2 photo either by performing these functions or by reviewing these items which were provided by the applicant and by performing a background investigation for crimes of a sexual nature. The results of both the inspections and the investigation shall be filed in writing with the board no later than twenty days after the date the application was filed with the board. Any inspection or investigation information not filed with the board in the time period specified shall not prevent the applicant from receiving the license and shall be treated by the board as if the report revealed no violations of applicable statutes, ordinances, or regulations, no violations of the provisions of this chapter, no sexually-oriented business/adult entertainment zoning code violations and/or no applicable criminal history.

2. The code department shall confirm that any booths or stages conform with the submitted diagram and the requirements set out in Sections 6.54.050A and 6.54.130.

3. The police department shall complete its investigation and the codes department and health department shall complete their respective inspections and shall communicate the results to the board in writing within twenty days of receipt of the application. The written investigation from the codes department and health department shall end with substantially one of the following statements:

The location at _____ complies with Chapter 6.54 and the applicable health code sections of the metropolitan code.

The location at _____ does not comply with Chapter 6.54 and the applicable health code sections of the metropolitan code. It is in violation of the following provisions: Section numbers of code violations.

The writing from the police department shall end with substantially the following statement:

The police department's criminal record check indicates that the persons listed on the application have/have not committed a crime of a sexual nature within the past five years. The persons listed on the application have committed the following crimes of a sexual nature:

Name Crime Date

4. If the building/structure has a valid use and occupancy permit, the applicant shall provide the board with a copy of the valid use and occupancy permit which shall be made part of the file.

C. Board Action on Inspection and Investigation Results.

1. Within fifteen days of receiving the results of the investigation conducted by the police department and the inspections by the codes department, and health department the board will meet and determine if the applicant is in compliance with this chapter and the applicable health statutes, ordinances and regulations.

2. If the board determines that the applicant is in compliance with this chapter, the applicable health statutes, ordinances and regulations, and the applicant has not committed a crime of a sexual nature, as defined in Section 6.54.010, is at least eighteen years of age, and has not given any false or misleading information on the application or omitted any material facts from the application, then the board shall grant the license. False or misleading information does not include information which the applicant reasonably believed, after exercising due diligence, was correct at the time of the application.

3. If the board fails to meet within the specified time period, fails to have a quorum, or fails to take action on the application within the specified time period, then the license shall be deemed approved and sent to the applicant by United States Mail to the address listed on the application within two days of the events described in this paragraph.

4. In the event the board denied the application in accordance with the provisions of this chapter, such denial and the reason for the denial shall be mailed to the applicant the next business day after the board meeting reviewing the results of the investigation and inspections.

5. If it is determined by the board, using the application and the inspection reports that the applicant has violated the provisions of the zoning code applicable to sexually oriented/adult entertainment businesses within the past two years, then the applicant is ineligible for a license for one year from the date the citation was sustained. A violation of the zoning code shall be evidenced by a judgment of a court. The fact that the judgment is being appealed shall have no effect on the disqualification of the applicant unless the judgment is stayed.

6. Any investigation reports or inspection reports not filed with the board in the time period specified in this section shall not prevent the applicant from receiving his/her license and shall be treated by the board as if that department approved the application.

7. If the board determines that the actual structure does not comply with Section 6.54.050(A) or the submitted diagram, then the applicant is not in compliance with this code section and the license shall be denied in accordance with Section 6.54.050(A) and (B).

8. If in the course of the investigation it is discovered any false or misleading statement or information was given on the application, or material facts were omitted from the application, the board shall deny the application in accordance with Section 6.54.050(B)(3). False or misleading information does not include information which the applicant reasonably believed, after exercising due diligence, was correct at the time of the application.

9. Within fifteen days of receiving the results of the investigation conducted by the police department, and inspection reports from the codes department, and health department, if the board shall determine that the applicant is not in compliance with this chapter, the zoning code or the applicable health statutes, ordinances and regulations, the applicant shall be notified in writing, the next business day, that the license is denied for failing to comply with applicable statutes, ordinances and regulations. This notice shall specify the violation. If the applicant can come into compliance as described in subsection D of this section, the denial shall not take effect. The notice shall also specify that the applicant may request a hearing within five days, cure the violation within fifteen days and request reinspection or request an extension of time.

10. The board has the discretion to hold any application for further investigation if: (a) the initial investigation requires investigation into out-of-state records; or (b) verification of out-of-state employment relating to a sexually oriented business or a sexually oriented business license/permit or similar business license/permit is needed. Such additional investigation shall not exceed an additional ten days from the end of the initial fifteen days specified in subsection (C)(1) of this section, unless otherwise agreed to by the applicant.

11. Whenever an application is denied or held for further investigation, the board shall advise the applicant in writing the next business day of the reasons for such action. Upon conclusion of the additional investigation, the board shall advise the applicant in writing the next business day whether the application is granted or denied.

12. Failure or refusal of the applicant to give any information relevant to the investigation of the application, or his/her refusal or failure to appear at a reasonable time and place for examination under oath regarding such application or his/her refusal to submit to or cooperate with any investigation required by this chapter, shall constitute an admission by the applicant that he/she is ineligible for such license and shall be grounds for denial thereof by the board. This in no way requires the applicant to agree to additional time extensions beyond that allowed in subsection (C)(10) of this section.

D. Extensions of Time for the Applicant.

1. If the license is denied, the applicant may reinstate his/her application by notifying the board in writing that he/she has come into compliance and requests reinspection.

a. The applicant has fifteen days from the mailing of the denial to cure the violation and notify the board or to request an extension pursuant to subsection (D)(2) of this section. The applicant has the responsibility to contact the board.

b. Once contacted, the board shall notify the appropriate inspector the next business day that the applicant believes he/she has come into compliance.

c. Upon notification by the board, the appropriate inspector shall return to the location for reinspection and shall submit another written report as indicated in subsection (B)(3) of this section. The inspector has five days from the date he/she was notified by the board to reinspect the premises and inform the board as to whether the applicant has come into compliance in the same manner described in subsection (B)(3) of this section and using the same language required in subsection (B)(3) of this section.

d. Based on the report of the inspector(s), the board shall determine if the applicant has come into compliance, and if so the board shall issue the license at the next regular meeting. The next meeting shall be held no later than fifteen days after the inspection report is filed with the board. Any inspections not filed with the board in the time period specified in this section will be treated as described in subsection (C)(6) of this section.

e. If the applicant fails to either contact the appropriate inspector to report that the code violations have been corrected, or if the code violations have not been corrected, then the application will be denied.

2. If the process of curing the violation requires more time than that provided in subsection (D)(1) of this section, the applicant may request an extension from the board. If the applicant does not make such a request in the time allotted, the application is denied.

a. The request for an extension must be made in writing within fifteen days from the denial.

b. The board shall hear the applicant's request for an extension at the next regular meeting. The next meeting shall be held no later than fifteen days after the request for the extension is received by the board.

c. The hearing on the extension shall follow the same rules as set out in Section 6.54.020(G) except that the decision of the board shall grant or deny the extension and a decision to grant an extension shall take effect immediately.

d. An extension shall only be granted when the codes inspector and the health inspector agree that an extension will not endanger the health or safety of the community and the board determines that the applicant has demonstrated a good faith effort to make the necessary repairs or cure the violation(s) in a timely manner.

3. If the applicant fails to follow the procedure set out in this subsection then the application is denied and the applicant must reapply to obtain a license. Following the procedure set out in subsections (D)(1) or (D)(2) of this section requires no additional fees. Once the deadlines to cure the violation or ask for an extension of time have passed, the initial denial shall be treated as a denial of the application.

E. Denial of the License Application.

1. When an application is denied, the applicant has the right to request a hearing within five days of the board's notification.

a. The request shall be in writing and filed with the board within five days of the board's decision.

b. The board shall hear all the evidence pertaining to the denial of the application at the next regular meeting. The next meeting shall be held no later than fifteen days after the request described above is mailed.

c. At the hearing, the applicant may present evidence as to why his/her application should not be denied. If the applicant fails to appear at the hearing before the board he/she will have waived the right to present evidence to the board. Failing to appear before the board will not preclude the applicant's right to appeal any denial to the circuit or chancery courts of Davidson County.

d. The board shall affirm or reject the denial of the application at the hearing and in writing state the reasons for the board's decision.

e. The denial of the application shall be mailed by U.S. mail the next business day to the address of the applicant as listed on the application.

f. If the board fails to meet within the specified time period, fails to have a quorum, or fails to take action on the application within the specified time period, then the license shall be deemed approved and sent to the applicant by United States Mail to the address listed on the application within two days of that specified time period.

2. Any denial of an application for a license may be immediately appealed to the circuit or chancery courts of Davidson County. The metropolitan department of law may institute proceedings for a declaratory judgment. If the applicant chooses to appeal by filing a petition for a writ of certiorari, then the metropolitan government shall file the record of all proceedings with the court within ten days from the date the metropolitan government was served with a petition for a writ of certiorari.

3. For an existing sexually oriented business, as defined in Section 6.54.010, any adverse administrative decision that is appealed to any court shall not take effect until that decision has been upheld by the court after adjudication on the merits. If the court fails to rule within forty days of the filing of an appeal, a license shall issue. When the court makes a determination after adjudication on the merits that upholds the administrative denial of the license then that license shall be revoked in accordance with Section 6.54.150(A)(8). Adverse administrative de-

cisions of the board, which are not appealed shall not take effect for sixty days from the date of the decision to allow the affected party time to seek judicial review.

4. For a new sexually oriented business, as defined in Section 6.54.010, any adverse administrative decision shall take effect the day the decision is issued by the board. If the adverse administrative decision is appealed to a court, and if the court fails to rule within forty days of the filing of an appeal, a license shall issue. When the court makes a determination after adjudication on the merits that upholds the administrative denial of the license then that license shall be revoked in accordance with Section 6.54.150(A)(8). (Ord. 99-1814 §§ 9—32, 1999; Amdt. 1 §§ 2, 3 with Ord. 99-1503 §§ 6—30, 1999; Ord. 97-1022 §§ 6—39, 1997; amended during 9-97 supplement; Amdt. 6 § 5 (part) with Ord. 97-796 § 2 (part), 1997)

6.54.050 Standards for issuance of license.

A. Physical Layout of Sexually Oriented Business.

1. Any sexually oriented business having available for customers, patrons or members any booth, for the viewing of any sexually oriented entertainment, including but not limited to sexually oriented films, sexually oriented movies, sexually oriented videos, shall submit a diagram under Section 6.54.040(A)(6) and the diagram submitted must be substantially the same as the structure observed by the inspector. Further, the structure and the diagram shall comply with the following requirements:

a. Access. Each booth shall be totally accessible to and from aisles and public areas of the sexually oriented business and shall be unobstructed by any door, gate, lock or other control-type devices.

b. Construction. Every booth shall meet the following construction requirements:

i. Each booth shall be separated from adjacent booths and any nonpublic areas by a solid or opaque wall;

ii. Have at least one side totally open to a public lighted aisle so that there is an unobstructed view at all times of anyone occupying same;

iii. All walls shall be solid and without any openings, extended from the floor to a height of not less than six feet and be light colored, nonabsorbent, smooth textured and easily cleanable;

iv. The floor must be light colored, nonabsorbent, smooth textured and easily cleanable; and

v. The lighting level of each booth shall be a minimum of ten footcandles at all times as measured from the floor.

2. The provisions enunciated in subdivision 1 of this subsection shall not apply to bathrooms unless the bathroom contains any equipment which would allow the viewing of sexually oriented films, sexually oriented movies, sexually oriented videos.

3. Any live performance of sexually oriented entertainment shall occur upon a stage at least eighteen inches above the immediate floor level and removed at least three feet from the nearest customer. A three-foot boundary from the outer edge of the stage shall be indicated on the floor by a rail, barrier, lighting, luminous tape or paint, or any other method which will make the boundary visible in a darkened condition so that the customer will not invade the three-foot boundary from the stage with any portion of his/her body.

B. Applicant.

1. To receive a license to operate a sexually oriented business, an applicant must meet the following standards:

a. If the applicant is an individual, the applicant shall be at least eighteen years of age;

b. If the applicant is a corporation, all officers, directors and stockholders required to be named under Section 6.54.040(A)(5)(i) shall be at least eighteen years of age;

c. If the applicant is a partnership, joint venture, or any other type of organization where two or more persons have a financial interest, all persons having a financial interest in the business and who are involved in the day-to-day operation of the business shall be at least eighteen years of age.

2. No individual applicant, no officer, director or stockholder required to be named under Section 6.54.040(A)(5)(i) and no partners required to be named under Section 6.54.040(A)(5)(j) convicted of a crime of a sexual nature, as defined in Section 6.54.010, in any jurisdiction shall be eligible to receive a license for the time period described below.

a. If the conviction was for a misdemeanor violation, then the applicant shall be ineligible to receive a permit for two years from the date of the conviction.

b. If the conviction was for a felony violation, then the applicant shall be ineligible to receive a permit for five years from the date of the conviction.

c. The time is computed from the date of the conviction by the trial court to the date of the application. The fact that a conviction is being appealed shall have no effect on the disqualification of the applicant until the trial court's conviction is reversed.

3. The applicant shall not have given any false or misleading information on the application, or omitted any material facts from the application. False or mislead-

ing information does not include information which the applicant reasonably believed, after exercising due diligence, was correct at the time of the application.

a. If the applicant gave any false or misleading information or omitted any material facts, then the applicant shall be ineligible to receive a license for one year from the date of the application which contained the misleading statements or omissions unless the omission or misleading statement referred to the age of the applicant or to a crime of a sexual nature, as defined in Section 6.54.010.

b. If the misleading statements or omissions referred to the age of the applicant, then the applicant shall not be eligible to receive a license until he/she is eighteen or until one year has passed from the date of the application which contained the misleading statements or omissions whichever is later.

c. If the misleading statements or omissions referred to a crime of a sexual nature, as defined in Section 6.54.010, then the applicant shall not be eligible to receive a license until the time period described in subsection (B)(2)(a) through (c) of this section has expired or until one year has passed from the date of the application which contained the misleading statements or omissions, whichever is later.

d. If the misleading statements or omissions referred to violations of Section 17.36.260 of the zoning code, then the applicant shall not be eligible to receive a permit until the time period described in subsection (B)(5) of this section has expired or until one year has passed from the date of the application which contained the misleading statements or omissions, whichever is later.

4. An applicant having had a sexually oriented business/establishment license or similar license/permit revoked within the last year shall not be eligible for a license for one year from the date of revocation.

5. No applicant shall have been found to have previously violated Section 17.36.260 of the metropolitan zoning code applicable to sexually oriented/adult entertainment businesses, as evidenced by the judgment of a court within one year immediately preceding the date of the application. If such violations exist, the applicant shall be ineligible for a license for one year from the date the citation was sustained. The fact that a trial court's judgment is being appealed shall have no effect on the disqualification of the applicant until the trial court's judgment is reversed.

6. Any applicant found to have previously violated this chapter by operating or maintaining a sexually oriented business/establishment within the metropolitan area without a license, as evidenced by a judgment of a court, within one year immediately preceding the date of the application shall be ineligible for a license for one year from the date of the judgment. The fact that a trial court's judgment is being appealed shall have no effect on the disqualification of the applicant unless the judgment is stayed. (Ord. 99-1814 §§ 33—35 1999; Ord. 99-1503 §§ 31—49, 1999; Ord. 97-1022 §§ 40—45, 1997; amended during 9-97 supplement; Amdt. 7 (part) with Ord. 97-796 § 2 (part), 1997)

6.54.060 Permit required.

A. Except as provided in subsection B of this section, from and after March 1, 1999, no person shall be an entertainer in a sexually oriented business within the metropolitan area without first obtaining a permit issued by the board.

B. All current entertainers, as defined in Section 6.54.010, wishing to continue to perform sexually oriented entertainment must submit an application for a permit by March 15, 1999. All current entertainers, who apply for a permit by March 15, 1999, may continue to perform sexually oriented entertainment even if the board votes to deny the application where such denial is appealed to a court in accordance with Section 6.54.070(D)(3). All new entertainers, as defined in Section 6.54.010, may submit an application at any time but may not perform sexually oriented entertainment until a permit is granted except as described in Section 6.54.070(D)(4).

C. Any entertainer found to have previously violated this chapter by providing sexually oriented entertainment in a sexually oriented business/establishment within the metropolitan area without a permit, as evidenced by a judgment of a court, within one year immediately preceding the date of the application shall be ineligible for a permit for one year from the date of the judgment. The fact that a trial court's judgment is being appealed shall have no effect on the disqualification of the applicant unless the judgment is stayed. (Ord. 99-1814 §§ 36, 37, 1999; Ord. 99-1503 § 50, 1999; Ord. 97-1022 §§ 46, 47, 1997; Amdt. 7 (part) and Amdt. 6 § 7 with Ord. 97-796 § 2 (part), 1997)

6.54.070 Application for permit.

A. Application.

1. Any person desiring to secure a permit shall make application to the board. The applicant shall file the original application with three copies. The original application shall be dated by the board and held in the files of the board. A copy of the application shall be distributed the next business day by the board to the Metropolitan Nashville police department and the applicant.

2. Application forms shall be available at the office of the board. Applicants may obtain their application from the codes department. Applicants must also submit with each application two 2 (2 photos.

a. Background Check. All background checks shall be completed by the metropolitan police department. The police department may be notified of a need for a background check in two ways. The applicant brings his/her application, including one of the two photos to the police department and has his/her fingerprints taken at the police department. The police then begin the background check and once completed, send the background check, application, fingerprint card, and photo to the office of the board. In the alternative, the applicant can obtain fingerprints as described below, turn into the board a complete application including, fingerprints and two photos and the board shall send the complete application to the police department requesting a background check. The police will return the complete application with the completed background check to the office of the board.

b. Fingerprints. The applicant shall have his/her fingerprints completed by the police department. If the applicant intends to mail his/her application to the board then he/she shall have his/her local law enforcement agency take his/her fingerprints and photograph and that law enforcement agency shall mail the fingerprints directly to the metropolitan police department.

c. Fees. If the applicant brings his/her application to the police department, the police department shall not charge the applicant any additional fee for fingerprinting or a background check. If the applicant has the fingerprinting performed without informing the police department that it is for his/her application for a sexually oriented entertainer permit, then the applicant may retain the receipts for the fingerprinting and give them to the codes department when the applicant files his/her application. The codes department shall subtract the expenses for the fingerprints from the one hundred dollar permit fee, and the applicant shall pay the difference. This same procedure applies if the applicant has his/her fingerprints and photographs taken by their local law enforcement agency and mailed directly to the metropolitan police department. Photos can be taken by the codes department at no additional fee or the applicant may have his/her photo taken elsewhere.

3. The application form shall include all information indicated in subdivisions (4)(a) through (4)(h) of this subsection.

4. The applicant shall furnish the following information under oath:

a. Name and address including all aliases;

b. Proof of the applicant's date of birth demonstrating that the applicant is at least eighteen years of age;

c. All residential addresses of the applicant for the past three years (for the purpose of facilitating the police investigation into the applicant's criminal background regarding crimes of a sexual nature);

d. The applicant's height, weight, color of eyes, and hair (for the purpose of facilitating the police investigation into the applicant's criminal background regarding crimes of a sexual nature);

e. Whether the applicant previously entertained in this or any other county, city, or state under a sexually oriented business license/permit or similar business license/permit within the last year. For whom the applicant was employed or associated at the time. Whether the applicant has had such a license/permit revoked or suspended within the last year and the reason therefor and the business entity or trade name for whom the applicant was employed or associated at the time of such suspension or revocation;

f. All convictions for crimes of a sexual nature, as defined in Section 6.54.010, punishable as a misdemeanor violation that have occurred within the past two years. All convictions for crimes of a sexual nature, as defined in Section 6.54.010, punishable as a felony that have occurred within the past five years;

g. Fingerprints and two photographs at least two inches by two inches of the applicant (for the purpose of facilitating the police investigation into the applicant's criminal background regarding crimes of a sexual nature); and

h. A statement by the applicant that he/she is familiar with the provisions of this chapter and a statement swearing that information provided on the application is true and accurate.

B. Investigation. The police department shall investigate the applicant's criminal history by collecting the applicant's fingerprints and 2 (2 photo and by performing a background investigation for crimes of a sexual nature. The results of the investigation shall be filed in writing with the board no later than twenty days after the date the application was filed with the board. Any investigation information not filed with the board in the time period specified shall not prevent the applicant from receiving his/her permit and shall be treated by the board as if the report revealed no applicable criminal history.

C. Board Action on the Investigation Results.

1. Within fifteen days of receiving the results of the investigation conducted by the police department the board will meet and if it determines that the applicant has not been convicted of a crime of a sexual nature, as defined in Section 6.54.010, has not had a similar type of permit/license revoked in the last year, is at least eighteen

years of age, and has not given any false or misleading information on the application or omitted any material facts from the application then the board shall grant the permit. False or misleading information does not include information which the applicant reasonably believed, after exercising due diligence, was correct at the time of the application.

2. If the board fails to meet within the time period specified, or fails to have a quorum at the meeting, then the permit shall be deemed approved and sent to the applicant by United States mail to the address listed on the application.

3. In the event the board denied the application in accordance with Section 6.54.080, such denial and the reason for the denial shall be mailed to the applicant the next business day after the board meeting reviewing the results of the investigation.

4. Any investigation reports not filed with the board in the time period specified in this section shall not prevent the applicant from receiving his/her permit and shall be treated by the board as if that department approved the application.

5. If in the course of the investigation it is discovered any false or misleading statements or information was given on the application, or material facts were omitted from the application, the board shall deny the application in accordance with Section 6.54.080. False or misleading information does not include information which the applicant reasonably believed, after exercising due diligence, was correct at the time of the application.

6. The board has the discretion to hold any application for further investigation if: (a) the initial investigation requires investigation into out-of-state records; or (b) verification of out-of-state employment relating to a sexually oriented business or the revocation of a sexually oriented business license/permit or similar business license/permit is needed. Such additional investigation shall not exceed an additional ten days from the end of the initial fifteen days specified in subsection (D)(1) of this section, unless otherwise agreed to by the applicant.

7. Whenever an application is denied or held for further investigation, the board shall advise the applicant in writing the next business day of the reasons for such action. Upon conclusion of the additional investigation, the board shall advise the applicant in writing the next business day whether the application is granted or denied.

8. Failure or refusal of the applicant to give any information relevant to the investigation of the application, or his or her refusal or failure to appear at a reasonable time and place for examination under oath regarding such application or his or her refusal to submit to or cooperate with any investigation required by this chapter, shall constitute an admission by the applicant that he/she is ineligible for such permit and shall be grounds for denial thereof by the board. This in no way requires the applicant to agree to additional time extensions beyond that allowed in subsection (C)(6) of this section.

D. Denial of the Permit Application.

1. When an application is denied, the applicant has the right to request a hearing within five days of the board's decision.

a. The request shall be in writing and filed with the board within five days of the board's decision.

b. The board shall hear all the evidence pertaining to the denial of the application at the next regular meeting. The next meeting shall be held no later than fifteen days after the request described above is mailed.

c. At the hearing, the applicant may present evidence as to why his/her application should not be denied. If the applicant fails to appear at the hearing before the board he/she will have waived the right to present evidence to the board. Failing to appear before the board will not preclude the applicant's right to appeal any denial to the circuit or chancery courts of Davidson County.

d. The board shall affirm or reject the denial of the application at the hearing and in writing state the reasons for the board's decision.

e. The denial of the application shall be mailed by U.S. mail the next business day to the address of the applicant as listed on the application.

f. If the board fails to meet within the specified time period, fails to have a quorum, or fails to take action on the application within the specified time period, then the permit shall be deemed approved and sent to the applicant by United States Mail to the address listed on the application within two days of that specified time period.

2. Any denial of the application for a permit may be immediately appealed to the circuit or chancery courts of Davidson County. The metropolitan department of law may also initiate proceedings for a declaratory judgment. If the applicant chooses to appeal by filing a petition for a writ of certiorari, then the metropolitan government shall file the record of all proceedings with the court within ten days from the date the metropolitan government was served with a petition for a writ of certiorari.

3. For any current entertainer, as defined in Section 6.54.010, any adverse administrative decision that is appealed to any court shall not take effect until that decision has been upheld by the court after adjudication on the merits. If the court fails to rule within forty days of the filing of an appeal, a permit shall issue. When the court makes a determination after adjudication on the merits that upholds the administrative denial of the permit then that permit shall be revoked in accordance

with Section 6.54.150(C)(8). Adverse decisions of the board, which are not appealed shall not take effect for sixty days from the date of the decision to allow the affected party time to seek judicial review.

4. For a new entertainer, as defined in Section 6.54.010, any adverse administrative decision shall take effect the day the decision is issued by the board. If the adverse administrative decision is appealed to a court, and if the court fails to rule within forty days of the filing of an appeal, a permit shall issue. When the court makes a determination after adjudication on the merits that upholds the administrative denial of the permit then that permit shall be revoked in accordance with Section 6.54.150(C)(8).

E. The permit carried by the entertainer shall contain only the following information:

1. A photo identification as provided by the applicant;

2. A computer-generated number assigned to each applicant, corresponding to the file maintained on each applicant by the sexually oriented business licensing board; and

3. The date the permit was issued. (Ord. 99-1814 §§ 38—46, 1999; Amdt. 1 §§ 4—7 with Ord. 99-1503 §§ 51—64, 1999; Ord. 97-1022 §§ 48—62, 1997; amended during 9-97 supplement; Amdt. 7 (part), Amdt. 6 § 5 (part) and Amdt. 1 with Ord. 97-796 § 2 (part), 1997)

6.54.080 Standards for issuance of a permit.

A. Applicant. To receive a permit as an entertainer, an applicant must meet the following standards:

1. The applicant shall be at least eighteen years of age.

2. No applicant convicted of a crime of a sexual nature, as defined in Section 6.54.010, in any jurisdiction shall be eligible to receive a permit for the time period described below.

a. If the conviction was for a misdemeanor violation, then the applicant shall be ineligible to receive a permit for two years from the date of the conviction.

b. If the conviction was for a felony violation, then the applicant shall be ineligible to receive a permit for five years from the date of the conviction.

c. The time is computed from the date of the application to the date of the conviction.

3. The applicant shall not have given any false or misleading information on the application, or omitted any material facts from the application. False or misleading information does not include information which the applicant reasonably believed, after exercising due diligence, was correct at the time of the application.

a. If the applicant gave any false or misleading information or omitted any material facts, then the applicant shall be ineligible to receive a permit for one year from the date of the application which contained the misleading statements or omissions unless the omission or misleading statement referred to the age of the applicant or to a crime of a sexual nature, as defined in Section 6.54.010. False or misleading information does not include information which the applicant reasonably believed, after exercising due diligence, was correct at the time of the application.

b. If the misleading statements or omissions referred to the age of the applicant, then the applicant shall not be eligible to receive a permit until he/she is eighteen or until one year has passed from the date of the application which contained the misleading statements or omissions, whichever is later.

c. If the misleading statements or omissions referred to a crime of a sexual nature, as defined in Section 6.54.010, then the applicant shall not be eligible to receive a permit until the time period described in subsection (A)(2)(a) through (c) of this section has expired or until one year has passed from the date of the application which contained the misleading statements or omissions, whichever is later.

4. The applicant shall not have had a sexually oriented business permit/license or similar business permit revoked within the last year immediately preceding the application.

5. Any applicant found to have previously violated this chapter of the metropolitan code by providing sexually oriented entertainment within the metropolitan area without a permit, as evidenced by a judgment of a court, within one year immediately preceding the date of the application shall be ineligible for a permit for one year from the date of the judgment. The fact that a trial court's judgment is being appealed shall have no effect on the disqualification of the applicant unless the judgment is stayed. (Ord. 99-1814 § 47, 1999; Amdt. 1 § 8 with Ord. 99-1503 §§ 65—70, 1999; Ord. 97-1022 § 63 (part), 1997)

6.54.090 Fees.

A. A license fee of three hundred fifty dollars shall be submitted with the application for a license. If the application is denied, one-half of the fee shall be returned.

B. A permit fee of fifty dollars shall be submitted with the application for a permit. If the application is

denied, one-half of the fee shall be returned. (Ord. BL99-61 § 6, 2000; Ord. 97-1022 § 63 (part), 1997; Ord. 97-796 § 2 (part), 1997)

6.54.100 Display of license or permit.

A. The license shall be displayed in a conspicuous public place in the sexually oriented business.

B. The permit shall be carried by or be accessible to the entertainer during that entertainer's working hours and shall be displayed upon request of any member of the police department, health inspector, or board inspector.

C. If the business for which a license was issued ceases to exist in that a majority of the business assets have been liquidated, or the business has closed and ceased operations, then the license shall be returned to the board and cease to be valid. (Ord. 99-1503 §§ 67(2), 71, 1999; Ord. 97-1022 § 63 (part), 1997; Ord. 97-796 § 2 (part), 1997)

6.54.110 Renewal of license or permit.

A. Every license/permit issued pursuant to this chapter will terminate at the expiration of one year from the date of issuance unless sooner revoked and must be renewed before operation the following year.

B. Any operator desiring to renew a license or any entertainer desiring to renew a permit shall make application to the board. The application for renewal must be filed not later than sixty days before the license/permit expires. The original application for renewal plus the number of copies listed in Section 6.54.040A or 6.54.070A shall be filed and dated by the board.

C. The board shall send a copy to the same departments who would receive a copy of the initial application. These departments shall process the application in the same manner and within the same time limits which apply to the initial application.

D. The board shall provide the applicant with a copy of the application from the previous year and a new application form.

E. The renewal form shall be the same form described in Section 6.54.040A for a license and Section 6.54.070A for a permit except as indicated below in subsection H of this section.

F. For a renewal, the applicant may fill out the new form in its entirety or fill in any information which has changed over the year and is now different than the information indicated on the application from the prior year. The renewal must also include an updated background check by the police department and an updated 2 (2 photo. The renewal does not require resubmission of fingerprints submitted with the initial application. However, if new or additional persons are involved in the day to day operation of the licensed business those persons must submit fingerprints as described above.

G. If the applicant chooses to only include information concerning items which have changed, he/she will swear to the accuracy of both the information contained in the renewal form and the information attached from the prior year.

H. The renewal application form shall be the same form described in Section 6.54.040A for a license or Section 6.54.070A for a permit except the final line shall state:

> I swear the information I have given in the application from 199____ is still accurate and any facts or circumstances which have changed are indicated in this application for a renewal of the license/permit.
>
> _____
> signature of applicant

I. A license renewal fee of five hundred dollars shall be submitted with the application for renewal. In addition to the renewal fee, a late penalty of one hundred dollars shall be assessed against the applicant who files for a renewal less than sixty days before the license expires. If the renewal is denied, one-half of the fee collected shall be returned.

J. A permit renewal fee of one hundred dollars shall be submitted with the application for renewal. In addition to such renewal fee, a late penalty of fifty dollars shall be assessed against the applicant who files for renewal less than sixty days before the permit expires. If the renewal is denied, one-half of the fee shall be returned.

K. The application for a renewal is subject to the same rules and limitations as the initial application.

L. When an application for renewal is denied, the applicant has the right to request a hearing within five days of the board's decision.

1. The request shall be in writing and filed with the board within five days of the board's decision.

2. The board shall hear all the evidence pertaining to the denial of the renewal application at the next regular meeting. The next meeting shall be held no later than fifteen days after the request described above is mailed.

3. At the hearing, the applicant may present evidence as to why his/her renewal application should not be denied. If the applicant fails to appear at the hearing before the board he/she will have waived the right to present evidence to the board. Failing to appear before the board will not preclude the applicant's right to appeal any denial to the circuit or chancery courts of Davidson County.

4. The board shall affirm or reject the denial of the renewal application at the hearing and in writing state the reasons for the board's decision.

5. The denial of the renewal application shall be mailed by U.S. mail the next business day to the address of the applicant as listed on the application.

6. Any adverse administrative decision regarding the renewal of a license/permit that is appealed to any court shall not take effect until that administrative decision has been upheld by the court after adjudication on the merits. If a court fails to rule within forty days of the filing of an appeal, a new license/permit shall issue. When the court makes a determination after adjudication on the merits that upholds the administrative denial of the renewal for a license/permit then that license/permit shall be revoked in accordance with Section 6.54.150(A)(8) and (C)(8). Adverse decisions of the board which are not appealed shall not take effect for sixty days from the date of the decision to allow the affected party time to seek judicial review.

M. The denial of any renewal for a license/permit may be appealed to the circuit or chancery courts of Davidson County by the applicant. The metropolitan department of law may initiate proceedings for a declaratory judgment in the circuit or chancery court for Davidson County. If the applicant or the permittee/licensee chooses to appeal by filing a petition for a writ of certiorari, then the metropolitan government shall file the record of all proceedings with the court within ten days from the date the metropolitan government was served with the petition for a writ of certiorari. (Amdt. 1 § 9 with Ord. 99-1503 §§ 72, 73, 1999; Ord. 97-1022 §§ 63 (part), 64—68, 1997; amended during 9-97 supplement; Amdt. 7 (part) and Amdt. 6 § 5 (part) with Ord. 97-796 § 2 (part), 1997)

6.54.120 Hours of operation.

A. All sexually oriented businesses shall be closed between the hours of three a.m. and eight a.m. Monday through Saturday and between the hours of three a.m. and twelve noon on Sundays.

B. All public areas of every sexually oriented business shall be open to inspection at any time during normal business hours by the following departments: police, codes, board inspector, and health. (Ord. 99-1503 § 74, 1999; Ord. 97-1022 § 63 (part), 1997; Amdt. 7 (part) and Amdt. 6 § 8 with Ord. 97-796 § 2 (part), 1997)

6.54.130 Responsibilities of the operator.

A. An operator is responsible for the conduct of all entertainers while on the licensed premises and any act or omission of any entertainer constituting a violation of the provisions of this chapter shall be deemed the act or omission of the operator for purposes of determining whether the operator's license shall be revoked, suspended, renewed or a penalty assessed subject to the limits described in Section 6.54.150(E).

B. No employee on the premises for furthering the business, but not including independent contractors on the premises for repairs and construction, of a sexually oriented business shall allow any minor to loiter around or to frequent a sexually oriented business or to allow any minor to view sexually oriented entertainment as defined herein on the premises of a licensed business.

C. Every sexually oriented business shall be physically arranged in such a manner that the entire interior portion of any booths, wherein sexually oriented motion pictures, sexually oriented movies, sexually oriented films or sexually oriented videos are viewed, shall be visible from the common area of the premises having at least one side totally open to a public lighted aisle so that there is an unobstructed view at all times of anyone occupying same. Visibility shall not be blocked or obscured by doors, curtains, partitions, drapes, or any other obstruction whatsoever. Further, any wall forming any portion of the booths, shall be solid and without any openings, extended from the floor to a height of not less than six feet. This section shall be construed in conjunction with Section 6.54.050A.

D. It is unlawful to install enclosed booths for the purpose of viewing of sexually oriented motion pictures, sexually oriented movies, sexually oriented films, sexually oriented videos. The licensee shall be responsible for and shall provide that any booth, or area used for the purpose of viewing sexually oriented motion pictures, sexually oriented movies, sexually oriented films or sexually oriented videos shall be readily accessible at all times and shall be continuously open to view in its entirety.

E. Live sexually oriented entertainment shall not be permitted in booths.

F. A sign shall be conspicuously displayed in the common area of the premises, and shall read as follows:

> This Sexually Oriented Business is regulated by The Metropolitan Code of Nashville and Davidson County, Chapter 6.54 which provides that no customer shall be permitted to have any physical contact with any entertainer on the premises during any performance. All performances shall only occur upon a stage at least eighteen inches above the immediate floor level at least three feet from the nearest customer.

G. It shall be the duty of the operator, to ensure that the line of sight and view area between the common area and any booths remain unobstructed by any doors, walls, merchandise, display racks or other materials at any time

that any patron is permitted access to any booth. Entertainers and employees, on the premises for furthering the business, not including independent contractors on the premises for repairs or construction, shall not place any obstructions in front of any booths at any time that any patron is permitted access to any booth.

H. It shall be the duty of the operator and employees on the premises for furthering the business, not including independent contractors on the premises for repairs or construction, to ensure that the illumination in booths, described in Section 6.54.050(A)(1)(b)(v) is maintained at all times that any patron is present on the premises.

I. No operator shall allow openings of any kind to exist between booths, and no person, including entertainers and employees shall make or attempt to make an opening of any kind between any booths.

J. The operator or his/her designee shall, during each business day, regularly inspect the walls between the booths, to determine if any openings or holes exist. If such openings exist it is the duty of the operator to repair the damage as soon as possible. No patron shall be permitted access to a booth, where an opening or a hole exists. It shall be the duty of the operator to ensure those booths are unoccupied by patrons until the opening is repaired or covered. (Ord. 99-1814 § 48, 1999; Amdt. 1 § 10 with Ord. 99-1503 §§ 75—84, 1999; Ord. 97-1022 §§ 63 (part), 69—73, 1997; Amdt. 7 (part) with Ord. 97-796 § 2 (part), 1997)

6.54.140 Prohibitions and unlawful sexual acts.

A. No operator, entertainer or employee on the premises for furthering the business, not including independent contractors on the premises for repairs or construction, of a sexually oriented business shall permit to be performed, offer to perform, perform or allow customers, employees or entertainers to perform sexual intercourse or oral or anal copulation or other contact stimulation of the genitalia on the premises.

B. No operator, entertainer or employee on the premises for furthering the business, not including independent contractors on the premises for repairs or construction, shall encourage or permit any person upon the premises to touch, caress or fondle the breasts, buttocks, anus or genitals of any entertainer, operator or employee.

C. No customer shall be permitted to have any physical contact with any entertainer on the licensed premises while the entertainer is engaged in a performance of live sexually oriented entertainment. All performances of live sexually oriented entertainment shall only occur upon a stage at least eighteen inches above the immediate floor level and removed at least three feet from the nearest customer.

D. Only one individual shall occupy a booth at any time. No occupant of a booth shall engage in any type of copulation, masturbation or the display of specified anatomical areas as defined herein or cause any bodily discharge of urine, feces or semen while in the booth. No individual shall damage or deface any portion of the booth.

E. Live sexually oriented entertainment shall not be permitted in booths.

F. No customer shall invade the three-foot boundary from the outer edge of the stage as required to be designated by Section 6.54.050(A)(3). (Ord. 99-1814 §§ 49, 50, 1999; Ord. 99-1503 §§ 85—87, 1999; Ord. 97-1022 § 63 (part), 1997; amended during 9-97 supplement; Amdt. 7 (part), Amdt. 6 §§ 3, 4 and Amdt. 4 with Ord. 97-796 § 2 (part), 1997)

6.54.150 Revocation or suspension of license/permit.

A. The board shall revoke a license for any of the following reasons:

1. Discovery that false or misleading information or data was given on an application, or material facts were omitted from an application. False or misleading information does not include information which the applicant reasonably believed, after exercising due diligence, was correct at the time of the application;

2. The licensee was or has become ineligible to obtain a license under Section 6.54.050(B);

3. Any cost or fee required to be paid by this chapter is not paid;

4. The licensee knowingly employs, or with due diligence should have known that licensee was employing, an entertainer who does not have a permit. The licensee knowingly provides, or with the exercise of due diligence should have known the he/she was providing, space on the premises whether by lease or otherwise to an independent contractor who performs or works as an entertainer without a permit;

5. The licensee sells, furnishes, gives, displays, or causes to be sold, furnished, given or displayed to any minor any sexually oriented entertainment or sexually oriented material on the licensed premises. The licensee knowingly allows, or thorough the exercise of due diligence should have been able to prevent, the licensee's employee, who is on the premises furthering the business of the licensee, from selling, furnishing, giving, displaying, or causing to be sold, furnished, given or displayed to any minor any sexually oriented entertainment or sexually oriented material on the licensed premises.

The licensee knowingly allows, or thorough the exercise of due diligence should have been able to prevent, an entertainer to sell, furnish, give, display, or cause to be

sold, furnished, given or displayed to any minor any sexually oriented entertainment or sexually oriented material on the licensed premises;

6. The licensee knowingly denies, or thorough the exercise of due diligence should have known that he/she was denying, access to law enforcement personnel during business hours to any portion of the licensed premises wherein sexually oriented entertainment is permitted or to any portion of the licensed premises wherein sexually oriented material is displayed or sold.

The licensee knowingly allows, or thorough the exercise of due diligence should have been able to prevent, his/her employee, who is on the premises furthering the business of the licensee, to deny access to law enforcement personnel during business hours to any portion of the licensed premises wherein sexually oriented entertainment is permitted or to any portion of the licensed premises wherein sexually oriented material is displayed or sold.

The licensee knowingly allows, or thorough the exercise of due diligence should have been able to prevent an entertainer to deny access to law enforcement personnel during business hours to any portion of the licensed premises wherein sexually oriented entertainment is permitted or to any portion of the licensed premises wherein sexually oriented material is displayed or sold;

7. The attempted transfer of a license or any interest in a license;

8. If an application for a license or a renewal of a license was denied and that administrative denial was appealed and upheld by a court after adjudication on the merits then that license shall be revoked on the effective date of the court's judgment.

9. The licensee fails to maintain the licensed premises in a sanitary and safe condition by allowing continuing violations of Chapter 6.54.

A continuing violation shall mean more than two judgments from the board, unless the decision of the board is appealed and overturned, that the licensee violated Chapter 6.54 within a twenty-four-month period, not including any period of suspension. The fact that the board's judgment is being appealed shall have no affect on the determination that the violation has been continuing until such time as the judgment of the board is reversed.

The licensee may affirmatively prove as a defense to an alleged violation of Chapter 6.54 that the licensee did not know, or through the exercise of due diligence could not have known that his/her employees' acts or an entertainer's acts would violate Chapter 6.54. If the licensee knew or should have known that his/her employees' acts or an entertainer's acts were violating any subsection of Chapter 6.54, the licensee may still affirmatively prove as a defense to the violation that the licensee was powerless to prevent the continuing unsafe or unsanitary condition.

10. Continuous violations of Tennessee Code Annotated Section 57-4-204 or Metropolitan Code Section 7.24.030. Continuous violations shall mean that the licensee had more than two judgments entered against him/her for violating Tennessee Code Annotated Section 57-4-204 or Metropolitan Code Section 7.24.030 within a twenty-four month period, not including periods of suspension. The fact that the trial court's judgment is being appealed shall have no effect on the revocation until such time as the judgment of the trial court is reversed.

B. The board shall either fine, suspend or fine and suspend a license for any of the following reasons, that are not sufficient grounds for revocation:

1. The licensee fails to maintain the licensed premises in a sanitary or safe condition by allowing a violation of Chapter 6.54, Tennessee Code Annotated Section 57-4-204 or Metropolitan Code Section 7.24.030.

The licensee may affirmatively prove as a defense to an alleged violation of Chapter 6.54, Tennessee Code Annotated Section 57-4-204 or Metropolitan Code Section 7.24.030 that he/she did not know, or through the exercise of due diligence could not have known of his/her employee's acts or omissions or an entertainer's act or omissions. If the licensee knew or should have known that his/her employee or an entertainer was violating any such subsection of Chapter 6.54, Tennessee Code Annotated Section 57-4-204 or Metropolitan Code Section 7.24.030, the licensee may still affirmatively prove as a defense to the alleged violation that he/she was powerless to prevent the unsafe or unsanitary condition.

2. Upon the first violation of Chapter 6.54, Tennessee Code Annotated Section 57-4-204 or Metropolitan Code Section 7.24.030 within a twenty-four-month period, not including periods of suspensions, the licensee shall either be fined five hundred dollars or his/her license shall be suspended for a period no less than five days and no longer than thirty days or the licensee shall be both fined five hundred dollars and his or her license suspended for a period of not less than five days and no longer than thirty days.

3. Upon the second violation of Chapter 6.54, Tennessee Code Annotated Section 57-4-204 or Metropolitan Code Section 7.24.030 within a twenty-four-month period, not including periods of suspensions, the license shall be suspended no less than thirty-one days and no longer than ninety days.

A second violation of Chapter 6.54, shall mean a prior judgment from the board, unless the decision of the board is appealed and overturned, that the licensee violated

Chapter 6.54 within a twenty-four-month period, not including any period of suspension. The fact that the board's judgment is being appealed shall have no affect on the determination that the violation occurred previously until such time as the judgment of the board is reversed.

A second violation of Tennessee Code Annotated Section 57-4-204 or Metropolitan Code Section 7.24.030 shall mean a judgment from a trial court that the license violated Tennessee Code Annotated Section 57-4-204 or Metropolitan Code Section 7.24.030. The fact that a trial court's judgment is being appealed shall have no affect on the suspension and the judgment shall be treated as a violation until such time as the judgment of the trial court is reversed.

C. The board shall revoke a permit for any of the following reasons:

1. Discovery that false or misleading information or data was given on any application, or material facts were omitted from any application. False or misleading information does not include information which the applicant reasonably believed, after exercising due diligence, was correct at the time of the application;

2. The permittee has become ineligible to obtain a permit under Section 6.54.080A;

3. Any cost or fee required to be paid by this chapter is not paid;

4. The permittee provides sexually oriented entertainment on the premises of an operator who he/she knows, or with the exercise of due diligence should have known, does not have a license;

5. The permittee knowingly, or with the exercise of due diligence should have known that he/she, sells, furnishes, gives, displays, or causes to be sold, furnished, given or displayed to any minor any sexually oriented entertainment or sexually oriented material on the premises;

6. The permittee knowingly denies, or through the exercise of due diligence should have known that he/she was denying, access to law enforcement personnel during business hours to any portion of the licensed premises wherein sexually oriented entertainment is permitted or to any portion of the licensed premises wherein sexually oriented material is displayed or sold;

7. The permittee attempted to transfer his/her permit or any interest in his/her permit to someone else;

8. The application for a permit or the application for the renewal of a permit was denied and that administrative denial was appealed and upheld by a court after adjudication on the merits;

9. The permittee repeatedly fails to comply with the provisions of Chapter 6.54. Repeatedly fails to comply shall mean that the permittee has been found by the board to have violated Chapter 6.54 more than twice within a period of twenty-four months, not including any period of suspension. The fact that the board's judgment is being appealed shall have no affect on the determination that the permittee has repeatedly failed to comply until such time as the judgment of the board is reversed.

D. The board shall suspend a permit for any of the following reasons that are not grounds for revocation:

1. The permittee violates Chapter 6.54, Tennessee Code Annotated Section 57-4-204 or Metropolitan Code Section 7.24.030.

2. Upon the first violation of Chapter 6.54, Tennessee Code Annotated Section 57-4-204 or Metropolitan Code Section 7.24.030 within a twenty-four-month period, not including periods of suspensions, the permittee shall either be fined five hundred dollars or his or her permit shall be suspended for a period no less than five days and no longer than thirty days or the permittee shall be both fined five hundred dollars and his or her permit suspended for a period of no less than five days and no longer than thirty days.

Upon the second violation of Chapter 6.54, Tennessee Code Annotated Section 57-4-204 or Metropolitan Code Section 7.24.030 within a twenty-four-month period, not including periods of suspensions, the permit shall be suspended no less than thirty-one days and no longer than ninety days.

E. The board shall follow the following procedure for revoking or suspending a license or a permit.

1. Before revoking or suspending any license or permit the board shall give the operator or entertainer five days' written notice of the alleged violation(s) against him/her. In such cases the charges shall be specific and in writing except under Section 6.54.150(A)(7), (8) and Section 6.54.150(C)(7), (8) of this chapter.

2. The board shall hear all the evidence pertaining to the revocation or suspension at the next regular meeting. The next meeting shall be held no later than fifteen days after the notice described above is mailed. The licensee/permittee may present evidence bearing upon the question of suspension/revocation.

3. If the licensee/permittee fails to appear at the hearing before the board he/she will have waived the right to present evidence to the board on the citation. Failing to appear before the board will not preclude the licensee's/permittee's right to appeal any revocation/suspension to the chancery court of Davidson County.

4. If the licensee/permittee requests a hearing, the license/permit shall remain in effect and valid during the appeal to the board until such time as the hearing is held.

5. Any adverse administrative decision to suspend or revoke a license/permit that is appealed to the circuit or chancery courts of Davidson County shall not take effect until that administrative decision has been upheld by the court after adjudication on the merits. Adverse decisions of the board which are not appealed shall not take effect for sixty days from the date of the decision to allow the affected party time to seek judicial review.

6. The revocation/suspension of a license/permit may be appealed to the circuit or chancery courts of Davidson County by the licensee/permittee. The metropolitan department of law may initiate proceedings for a declaratory judgment in the circuit or chancery court for Davidson County. If the permittee/licensee chooses to appeal by filing a petition for a writ of certiorari, then the metropolitan government shall file the record of all proceedings with the court within seven days from the grant of the writ of certiorari.

F. Any operator or entertainer whose license or permit is revoked shall not be eligible to receive a license or permit for one year from the date of revocation. (Amdt. 1 §§ 11-13 with Ord. 99-1503 § 88, 1999)

6.54.160 Penalties and prosecutions.

A. Any individual, partnership or corporation violating any of the provisions of this chapter shall be subject to any of the following penalties:

1. Five hundred dollars for each offense; and/or

2. A suspension of any license/permit for a specified period of time for each offense listed in Section 6.54.150B or D; or

3. Revocation of any license/permit for any conduct listed in Section 6.54.150A or C.

B. The penalty of suspension may not be combined with revocation. The five-hundred dollar penalty alone can be a penalty or it may be combined with a suspension.

C. Each violation of this chapter shall be considered a separate offense and any continuing violation shall be considered a separate offense for each day of the violation. (Ord. 99-1814 § 51, 1999; Ord. 99-1503 §§ 89, 90, 1999; Ord. 97-1022 § 63 (part), 1997; Ord. 97-796 § 2 (part), 1997)

6.54.170 Invalidity of part.

Should any court of competent jurisdiction declare any section, clause or provision of this chapter to be unconstitutional, or any other ordinance of the metropolitan government unconstitutional, such decision shall affect only such section, clause, provision or ordinance so declared unconstitutional, and shall not affect any other section, clause or provision of this chapter. (Ord. 97-1022 § 63 (part), 1997; Ord. 97-796 § 2 (part), 1997)

Chapter 6.56

RESERVED*

*Editor's note—Ord. BL2012-261, § 10, adopted Oct. 16, 2012, repealed Ch. 6.56, § 6.56.010, which pertained to poolrooms and billiard parlors and derived from prior Code § 29-1-48.

Chapter 6.60

RENDERING PLANTS

Sections:

6.60.010	**Definitions.**
6.60.020	**Permit required.**
6.60.030	**Construction, facilities and operation.**
6.60.040	**Premises maintenance.**
6.60.050	**Sanitary conditions.**
6.60.060	**Equipment and utensils.**
6.60.070	**Reuse of containers.**
6.60.080	**Vehicles.**
6.60.090	**Handling diseased carcasses.**
6.60.100	**Reduction of animal matter.**
6.60.110	**Prohibited discharges.**
6.60.120	**Inspection authority—Right of entry.**

6.60.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Air pollution" means the presence in the outdoor atmosphere of one or more contaminants in quantities or characteristics and of duration such as to be injurious to human, plant or animal life or to property, or which unreasonably interfere with the comfortable enjoyment of life and property.

"Contaminants" means any extraneous material, such as, but not necessarily limited to, dust, fumes, gas, mist, odor, smoke, vapor or any combination thereof.

"Employee" means any person who handles inedible portions of animals or fowl for rendering purposes, or who is engaged in the rendering process, or who handles or transports materials or products thereof, or who is employed in a room in which any part of the rendering operation takes place.

"Equipment and utensils" means knives, cleavers, choppers, grinders, presses, cookers, conveyors, drums, washers, containers or other implements or vehicles used in the rendering process or in the storage and transportation of materials and products.

"Offal" means the inedible portions of animals, fish or poultry handled in an abattoir or rendering plant. This term includes tankage from rendering operations, hair, horn and hoof shells, bones, paunch contents, manure and similar material.

"Reduction" means any heating process, including rendering, cooking, drying, dehydrating, digesting, evaporating and protein concentrating.

"Rendering plant" means any establishment producing grease, tallow, meat and bone meal byproducts, either in cake or ground form, feather meal or tankage from the inedible portion of animals or fowl, or processing in whole or in part dead stock, heads, bones, blood, offal, butcher shop fats, packing house material, meat trimmings, used grease or any other nonedible portions of animals or fowl for protein fats or other products designated for commercial use. (Prior code § 20-1-202)

6.60.020 Permit required.

Any person desiring to construct, establish, conduct or maintain any plant in the metropolitan government area for the purpose of rendering shall first obtain a permit from the department of health. Only a person who complies with the requirements of this chapter shall be entitled to receive and retain such a permit. Upon violation of any of the provisions of this chapter by any permit holder, the chief medical director may suspend his permit for a period not exceeding forty-five days, and the board of health may revoke his permit permanently for serious or repeated violations. The holder of a permit shall be notified in writing by registered mail of the suspension of his permit, and no permit shall be revoked until the holder thereof is provided the opportunity for a hearing before the board of health. (Prior code § 20-1-203)

6.60.030 Construction, facilities and operation.

In the issuance of any permit under this chapter, the following requirements in plant construction, facilities and operation shall be observed:

A. Floors. All floors or processing and storage rooms shall be constructed of smooth concrete or other material of equal or less porosity. The surface shall be free of cracks, holes or raised surfaces and graded to provide sufficient drainage to a common drain, and shall be maintained in a sanitary condition and state of good repair.

B. Walls, Partitions and Ceilings. Ceilings, partitions and posts shall be of cleanable construction, and shall be cleaned and kept in a sanitary condition.

C. Doors and Windows. Openings into all plant rooms shall be effectively protected against the entrance of rodents, insects and other vermin.

D. Lighting and Ventilation. Rendering plants shall be well lighted and adequately ventilated. Lighting in plants shall be sufficient to provide not less than twenty footcandles on all working surfaces and working areas. Where necessary, adequate ventilation shall be provided.

E. Plumbing. There shall be an efficient drainage and plumbing system for the rendering plant and premises. All plumbing shall be installed in compliance with the metropolitan plumbing code.

F. Waste Disposal. The sewage system shall be adequate and have capacity to readily remove all wastes in an approved manner so that health hazards or nuisances will be prevented.

G. Water Supply—Generally. The water supply shall be ample, clean and potable, with adequate pressure, but not less than forty pounds per square inch, and there shall be adequate facilities for distributing the water and for protecting the water supply against contamination and pollution. Hose connections with steam and water mixing valves or hot water hose connections shall be provided at convenient locations throughout the plant for cleaning purposes, and the temperature of the hot water shall be maintained at not less than one hundred eighty degrees Fahrenheit.

H. Water Supply—Nonpotable Water. Nonpotable water is permitted only in those parts of the plant where no product is handled or prepared, and then only for limited purposes, such as on condensers not connected with the potable water supply, in vapor lines serving inedible products and rendering tanks. Nonpotable water lines shall be clearly identified and shall not be cross-connected with potable water supply lines.

I. Toilet and Lavatory Facilities.

1. Water closets conveniently located shall be provided for each sex according to the following table, based on the maximum number of persons of that sex employed at any one time:

Number of Persons	Minimum Number of Facilities
1—9	1
10—24	2
25—49	3
50—74	4
75—100	5
Over 100	1 for each additional 30 persons

2. Wherever urinals are provided, a maximum of one-third of the number of facilities specified in the preceding table may be replaced by an equal number of urinals. Two feet of porcelain enamel urinal may be considered equivalent to one urinal facility.

3. Handwashing facilities shall be provided in or near the employee toilet and dressing rooms. Lavatories shall be supplied with hot and cold water under pressure. Soap or other detergents dispensed through an approved dispenser, and sanitary means for drying hands shall be located in or near employee toilet and dressing rooms.

4. The use of a common towel is prohibited.

5. At least one lavatory shall be provided for each twenty employees up to one hundred employees, and one for each twenty-five employees above one hundred employees. (Prior code § 20-1-204)

6.60.040 Premises maintenance.

The premises within and surrounding rendering plants shall be kept clean and free of litter at all times and shall be well drained and maintained so that there are no pools of standing water. Spillage and waste material shall be collected promptly and removed from the premises. Loading areas and ramps shall be paved and kept clean, well drained and free of vermin. (Prior code § 20-1-205)

6.60.050 Sanitary conditions.

Rooms, compartments, places, equipment and utensils used for preparing, storing or otherwise handling inedible material and all other parts of the rendering plant shall be kept clean and sanitary. (Prior code § 20-1-207)

6.60.060 Equipment and utensils.

Equipment and utensils used for preparing, processing or otherwise handling inedible material shall be of such material and so constructed as to permit them to be easily and thoroughly cleaned. (Prior code § 20-1-206)

6.60.070 Reuse of containers.

Secondhand tubs, barrels or drums intended for reuse as containers of inedible material shall be of metal and shall be inspected when received at the rendering plant for leaks and broken seams. Those showing evidence of leaks or broken seams may be used only for dry material. Reuse of containers shall be allowed only after thorough washing and steam cleaning. (Prior code § 20-1-210)

6.60.080 Vehicles.

A. Any vehicles transporting meat scraps, bones, offal, fowl feathers, butcher shop fats, packinghouse material, hides, blood, heads, grease and trimmings designated as inedible material shall be easily cleanable, of impervious construction and completely enclosed.

B. Dead animals may be transported in open trucks; provided, that the truck body shall be leakproof to a side wall depth of at least twelve inches. The truck body shall be constructed with steel decks, sides and front-end walls, and there shall be provided a raised steel rim of adequate height to prevent any spillage from the rear end. When actually transporting dead animals on roads, streets and highways, the truck body shall be covered with a tarpaulin or other heavy canvas cover. Such trucks shall be covered immediately upon loading and be kept covered until emptied, and then shall be cleaned and disinfected.

C. All vehicles transporting items included under subsections A and B of this section shall be thoroughly cleaned and disinfected after each day's use, on a surfaced area properly drained. All owners and operators, including private individuals using vehicles for the transportation of inedible material or dead stock to or from rendering plants, shall be responsible for compliance with the provisions of this section.

D. The transportation of inedible products in vehicles designated for edible products and the transporting of edible products in vehicles designated for inedible products is prohibited. (Prior code § 20-1-209)

6.60.090 Handling diseased carcasses.

A. All persons who dress or handle diseased carcasses or parts thereof shall cleanse their hands of grease, wash them thoroughly, rinse them in clean water and immerse them in a disinfectant solution at the completion of such operation.

B. All utensils, equipment and implements used in dressing or handling diseased carcasses shall be thoroughly cleaned and disinfected at the completion of such operation. (Prior code § 20-1-208)

6.60.100 Reduction of animal matter.

No person shall operate or use any article, machine, equipment or other contrivance for the reduction of animal matter unless all gases, vapors and gas-entrained effluents from such an article, machine, equipment or other contrivance are:

A. Incinerated at temperature of not less than one thousand two hundred degrees Fahrenheit for a period of not less than 0.3 seconds; or

B. Processed in a manner determined by the chief medical director to be equally or more effective for the purpose of air pollution control than that specified in subsection A of this section. (Prior code § 20-1-212)

6.60.110 Prohibited discharges.

No person shall discharge into the atmosphere from any source whatsoever such quantities of contaminants or other material which cause injury, detriment, nuisance or annoyance to any considerable number of persons or to the public, or which endanger the comfort, repose, health or safety of any such person or the public, or which cause or have a natural tendency to cause injury or damage to business or property. (Prior code § 20-1-211)

6.60.120 Inspection authority—Right of entry.

The chief medical director or his authorized representative is authorized to conduct such inspections as he deems necessary to ensure compliance with all provisions of this chapter, and shall have right of entry at any reasonable hour to the rendering plant or premises for this purpose. (Prior code § 20-1-213)

Chapter 6.64

COMMERCIAL SOLICITORS*

Sections:

6.64.010	**Purpose.**
6.64.020	**Definitions.**
6.64.030	**Prohibiting solicitation by posting signs.**
6.64.035	**Solicitation restricted to daylight hours.**
6.64.040	**No-solicitation list for commercial solicitations.**
6.64.050	**Permit and identification badge required for all commercial solicitors.**
6.64.060	**Application contents; fees.**
6.64.070	**Duration of permit; renewal.**
6.64.080	**Persons prohibited.**
6.64.090	**Denial of permit.**
6.64.100	**False or deceptive representation prohibited.**
6.64.110	**Duty to display identification badge and to exhibit permit.**
6.64.120	**Transfer of permits prohibited.**
6.64.130	**Revocation of identification badge.**
6.64.140	**Nonrenewal or revocation of permit.**
6.64.150	**Records.**
6.64.160	**Appeals for denial or revocation of permit—Hearings.**
6.64.170	**Administrative regulations.**
6.64.180	**Violations and penalties.**
6.64.190	**Severability.**

6.64.010 Purpose.

The purpose of this chapter is as follows:

A. To balance the First Amendment rights of residential commercial solicitors with the privacy, safety, health and welfare of the residents within the area of the metropolitan government;

B. To require all commercial solicitors to conduct any door-to-door residential solicitation within the area of the metropolitan government pursuant to a permit and identification badge issued by the metropolitan clerk;

C. To prohibit commercial solicitations at residences where the owner or occupant has prohibited solicitation in a manner consistent with the provisions of this chapter.

D. The provisions of this chapter shall not and are not intended to apply to religious organizations nor to charitable organizations as defined in Section 6.64.020. Charitable organizations are expressly exempt from regulation under this chapter. (Ord. BL2012-283 § 1, 2013)

6.64.020 Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section:

"Applicant" means any person or entity who has submitted an application for a permit.

"Area of metropolitan government" means and includes the total area of Davidson County, as defined in Section 1.02 of the Metropolitan Charter.

"Charitable organization" means a group which is or holds itself out to be a benevolent, patriotic, philanthropic, political, social service, welfare, eleemosynary, civic, or fraternal organization who sells goods, wares, merchandise, or services, or solicits or obtains contributions soliciting from the public, for charitable purposes.

"Charitable purpose" means any purpose which is benevolent, patriotic, political, philanthropic, social service, welfare, eleemosynary, civic, environmental, or fraternal.

"Clerk" means the metropolitan clerk of the metropolitan government, or the clerk's designee.

"Commercial solicitor" means any person, whether as volunteer, owner, agent, consignee or employee, who engages in door-to-door commercial solicitation.

"Door-to-door commercial solicitation" means attempting to make personal contact with a resident at his or her residence, without prior specific invitation by or appointment with the resident, for the primary purpose of:

(1) Attempting to sell, for present or future delivery, any goods, wares or merchandise, other than newspaper or magazine subscriptions, or any services to be performed immediately or in the future, whether or not the person has, carries or exposes a sample of such goods, wares or merchandise, and whether or not he or she is collecting advance payments for such sales; or

(2) Personally delivering to the resident a handbill or flyer advertising a commercial event, activity, good or service that is offered to the resident for purchase at a location away from the residence or at a future time.

"Door-to-door solicitation" means attempting to make personal contact with a resident at his or her residence, without prior specific invitation by or appointment with

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***Editor's note—**Ord. BL2012-283, § 1, adopted March 5, 2013, amended Ch. 6.64 in its entirety to read as herein set out. Former Ch. 6.64, §§ 6.64.010—6.64.060, pertained to solicitations, and derived from prior Code §§ 37-1-1, 37-1-2, 37-1-4, 37-1-6; Ord. 95-1329 § 2(part), 1995; Ord. 96-527 §§ 1—3, 1996; Ord. BL2012-261 § 11, 2012.

the resident, for (a) non-commercial purposes or (b) to distribute written or printed materials upon public or private premises.

"Employer" means any person, company, corporation, business, partnership, organization or any other entity on behalf of whom a person is acting.

"Metropolitan government" means the Metropolitan Government of Nashville and Davidson County.

"No-solicitation" list means a list of the addresses of residents within the area of the metropolitan government who have requested that their residences be placed on a list maintained and published by the clerk for the purpose of informing the general public and prospective solicitors that all door-to-door commercial solicitation at such addresses is prohibited.

"Permit" means a document issued by the clerk authorizing a commercial solicitor to engage in door-to-door commercial solicitation.

"Permit holder" means any person to whom a permit has been issued under the provisions of this chapter.

"Person" means a natural person or business entity, such as, without limitation, a corporation, association, firm, joint venture, estate, trust, business trust, syndicate, fiduciary, partnership or any group or combination thereof.

"Residence" means a private residence within the area of the metropolitan government, including but not limited to, single and two-family dwellings, condominium units, and apartments, including the yards, grounds or hallways thereof. (Ord. BL2024-509 § 4, 2024; Ord. BL2016-384 § 3, 2016; Ord. BL2012-283 § 1, 2013)

6.64.030 Prohibiting solicitation by posting signs.

A. No commercial solicitor shall enter or remain upon any private property within the area of the metropolitan government if a "No Solicitation" or "No Trespassing" sign is posted by the property owner or lawful occupant at or near the entrance(s) to such property. No commercial solicitor shall engage in the act of commercial solicitation within the common areas of apartment and condominium complexes if a "No Solicitation" or "No Trespassing" sign is conspicuously posted at or near the entrance to the complex.

B. This section does not prohibit commercial solicitors from engaging in door-to-door solicitation within an apartment or condominium complex, with the exception that commercial solicitation shall be prohibited at any unit that has been added to the no-solicitation list pursuant to Section 6.64.040 of this chapter. (Ord. BL2012-283 § 1, 2013)

6.64.035 Solicitation restricted to daylight hours.

It shall be a violation of this chapter to engage in door-to-door commercial solicitation or door-to-door solicitation on any day (a) before sunrise or (b) after sunset or 7:00 p.m., whichever occurs later. (Ord. BL2024-509 § 5, 2024; Amdt. 1 to Ord. BL2017-953 § 1, 2018; Ord. BL2017-953 § 1, 2018)

6.64.040 No-solicitation list for commercial solicitations.

A. Any owner or lawful occupant of any residence within the area of the metropolitan government who wishes to prohibit door-to-door commercial solicitation, other than the sale of books and other expressive works, at his or her residence may register the address of such residence by completing a form prepared by the clerk and submitted through the clerk's website. Such registration shall take effect thirty calendar days after the date of the clerk's receipt of the registration form.

B. The clerk shall maintain and publish on the nashville.gov website a no-solicitation list consisting of all residential addresses that have been registered under subsection A. above and that have not been deleted by the clerk under subsection D. below or by the owner or lawful occupant of the registered property. Each permit holder shall be responsible for obtaining and reviewing a copy of such list immediately upon issuance of a permit under this chapter and at such intervals thereafter as may be reasonably necessary to ensure compliance with the requirements of subsection C. below.

C. As of the effective date of the registration of a residential address under subsection A. above, all door-to-door commercial solicitation at such address shall be prohibited until such time, if at all, that the address has been deleted from the no-solicitation list.

D. Each residential address appearing on the metropolitan government's no-solicitation list will remain on the list for two years from the date it was electronically submitted to the clerk unless removed by the owner or lawful occupant of the residence in accordance with subsection E. of this section. It shall be the duty of the owner or lawful occupant of a residence appearing on the no-solicitation list to ensure that the information included on the no-solicitation list is up-to-date. Such owner or lawful occupant shall provide the clerk with updated information as necessary. No later than thirty days prior to the expiration of the two-year period, the metropolitan clerk shall provide notice to a residential address of the upcoming expiration and potential removal of the address from the no-solicitation list. It shall be the responsibility of the owner or lawful occupant of the

residence to resubmit the address for placement on the no-solicitation list after the two years period has expired.

E. The owner or lawful occupant of any residence placing his/her address on the no-solicitation list may cause such residence to be removed from the list by submitting a written request for removal of the same to the clerk, and shall cause such residence to be removed if the ownership or lawful occupancy of the residence changes. All new owners or lawful occupants must register as provided in subsection A. above in order to be placed on the no-solicitation list.

F. Neither the metropolitan government nor any of its officers, employees, agents or authorized volunteers shall be liable to any person for any injuries, damages or liabilities of any kind arising from or relating to any errors or omissions that may occur in compiling or maintaining the no-solicitation list. (Ord. BL2024-470 § 1, 2024; Amdt. 1 to Ord. BL2012-283 § 1, 2013; Ord. BL2012-283 § 1, 2013)

6.64.050 Permit and identification badge required for all commercial solicitors.

A. Any person seeking to engage in commercial door-to-door solicitation must obtain a permit and ID badge from the clerk and shall pay the permit fee as provided in this chapter before commencing any such solicitation.

B. All permits shall be issued in the name of the applicant. A permit may be issued to an individual or an employer. Upon issuance of each permit, the clerk shall create and maintain a list of all persons authorized to engage in door-to-door commercial solicitation under the permit. It shall be the sole responsibility of the permit holder to:

1. Provide a copy of the permit to each person authorized to engage in solicitation under the permit;

2. Ensure that each person authorized to solicit under the permit complies with the terms and conditions of the permit and with the provisions of this chapter;

3. Notify the clerk in writing of any persons to be added to or deleted from the list of authorized solicitors or any changes in employment; and

4. Submit to the clerk, for each person to be added to such list, the information required under Section 6.64.060, subsection A.4., together with payment of the identification badge fee required under Section 6.64.060.C.

C. The clerk shall, within ten business days of the receipt, via mail or in person, of a complete application for a permit under this chapter, issue such permit, together with identification badges for all persons authorized to engage in door-to-door commercial solicitation under the permit, unless the clerk determines that the permit application is denied under the criteria stated in Section 6.64.090 of this chapter.

D. Subsequent to the issuance of any permit, and upon receipt of the information and fee required under Section 6.64.090 below, the clerk shall, within five (5) business days, issue an identification badge to any new or additional person to be authorized to solicit under the permit as long as such person is not prohibited under Section 6.64.080. The clerk shall also, within five business days, issue a replacement identification badge to any solicitor who, by affidavit, notifies the clerk that his or her identification badge has been lost or stolen, and who pays an additional identification badge fee as established under Section 6.64.060.

E. If an employer applies for and is granted a permit under this chapter, the employer shall be entitled to obtain identification badges from the clerk for each employee or agent authorized to solicit under the permit.

F. The identification badges shall contain a photograph of the solicitor, bear the words "Permitted Solicitor," include the names of the employer and solicitor, and the expiration date of the permit.

G. Identification badges issued under this chapter shall, upon expiration, be returned to the clerk. (Ord. BL2012-283 § 1, 2013)

6.64.060 Application contents; fees.

A. Each person applying for a door-to-door commercial solicitation permit shall file with the clerk an affidavit on a form supplied by the clerk stating:

1. The full name, business address and business telephone number of the applicant;

2. Information regarding the business as required by the clerk, including, without limitation, its name, address of its principal place of business, federal tax identification number, phone number, and proof of a valid business tax license issued by the Davidson County Clerk;

3. A complete list of all persons to be authorized to solicit under the permit;

4. For each person authorized to solicit under a permit, the following information:

a. Names, address, telephone number, date of birth, and social security number;

b. A statement certifying that the person is not prohibited from commercial solicitation under Section 6.64.080 of this chapter as determined by a criminal background check;

c. A description of the individual including height, weight, color of eyes and color of hair;

d. The number and state of issuance of the individual's motor vehicle operator's license or chauffeur's license, if any, or other state-issued photo identification; and

e. Any other identifying information as may be required by the clerk to ensure or verify compliance with this chapter; and

5. A brief explanation of the nature of the solicitation activity that requires a permit under this chapter, including the type of the goods, wares, merchandise, and/or services to be offered to the consumer;

6. If the applicant is a foreign corporation or an employee of such corporation, the name, address and telephone number of an agent for process residing in the state;

7. Proof that the applicant has obtained a valid business tax license;

8. Any other information determined to be relevant by the clerk.

B. At the time of application, the applicant shall also provide a photograph of each person to be authorized to solicit under the permit. The clerk may require this photograph to be taken in person at a place designated by the clerk or by submission of a photograph, taken no more than six months prior to the date of application, which photograph fairly depicts the appearance of the proposed solicitor as of the date of application and which, in the judgment of the clerk, is suitable for reproduction on the identification badge to be issued by the metropolitan government.

C. At the time of application, each applicant shall pay a fee in an amount determined by the clerk to be sufficient to defray the costs incurred by the metropolitan government in processing the application, plus an additional fee to defray the costs of preparing and issuing an identification badge for each person to be authorized to solicit under the permit, including the applicant. Said fees shall be nonrefundable. Such fees shall be ratified by resolution of the metropolitan council prior to becoming effective.

D. Background Check. All commercial solicitation permit applicants shall undergo a criminal background check as part of the determination of permit eligibility. The clerk shall utilize the metropolitan government's competitively-bid contractor retained to provide employee investigations and background checks for the purpose of obtaining a criminal background check for commercial solicitation permit applicants. All costs of the criminal background check shall be borne by the applicant. (Ord. BL2012-283 § 1, 2013)

6.64.070 Duration of permit; renewal.

A. Each permit shall be valid for two years, effective from the date of issuance.

B. Any permittee wishing to renew a permit issued under this chapter must apply for the renewal of the permit no less than thirty days prior to the expiration of its term. Said application shall be accompanied by a criminal background check as required under Section 6.64.060 for each person who is to be authorized to solicit under the permit during the renewal term of the permit. If a permittee fails to apply for such renewal within said thirty day period of time, the permit will expire. The nonrefundable renewal fee for each permittee shall be determined by the clerk in an amount sufficient to defray the costs incurred by the clerk in processing the renewal application. Said fee shall be ratified by resolution of the metropolitan council prior to becoming effective. (Ord. BL2012-283 § 1, 2013)

6.64.080 Persons prohibited.

A person shall not be eligible for issuance of a permit or identification badge under this chapter if:

A. Such person has been convicted, pled guilty, placed on probation or parole, pleaded nolo contendere, or been released from incarceration within a period of five years prior to the date of application of a crime of moral turpitude. For purposes of this section, "moral turpitude" means premeditated murder, all sex related crimes, the illegal sale of Schedule I and II controlled substances, and crimes of fraud or embezzlement.; or

B. A permit or an identification badge previously issued to such person under this chapter has been revoked by the clerk under Sections 6.64.130 or 6.64.140 of this chapter. (Amdt. 1 to Ord. BL2017-953 § 2, 2018; Ord. BL2017-953 § 2, 2018; Ord. BL2012-283 § 1, 2013)

6.64.090 Denial of permit.

The clerk shall deny an application for a permit or any renewal of a permit under this chapter if the clerk determines that the applicant has:

A. Made any material misrepresentation or false statement in the application for the permit; or

B. Failed to obtain a business tax license as required by law; or

C. Been convicted of any of the enumerated crimes and offenses set forth in Section 6.64.080 of this chapter. (Ord. BL2012-283 § 1, 2013)

6.64.100 False or deceptive representation prohibited.

No person shall attempt to obtain, by telephone or otherwise, an invitation to visit any private residence for

the purpose of soliciting the purchase or sale of goods, services or any other thing of value, by knowingly making a false or deceptive representation or statement. (Ord. BL2012-283 § 1, 2013)

6.64.110 Duty to display identification badge and to exhibit permit.

A. Any commercial solicitor engaging in door-to-door commercial solicitation under a permit issued pursuant to this chapter shall conspicuously display his or her identification badge on the front of his/her person at all times while engaged in the act of commercial soliciting.

B. Whenever requested by any police officer or by any customer or prospective customer, any commercial solicitor engaged in door-to-door commercial solicitation under a permit issued pursuant to this chapter shall exhibit his or her identification badge and permit.

C. A permit holder shall, without undue delay, report any lost or stolen identification badge to the clerk. (Ord. BL2012-283 § 1, 2013)

6.64.120 Transfer of permits prohibited.

No permit issued pursuant to this chapter shall be transferred to any person. (Ord. BL2012-283 § 1, 2013)

6.64.130 Revocation of identification badge.

The clerk may suspend or revoke the identification badge of any solicitor that has engaged in any unlawful solicitation or any solicitation conducted in such a manner as to constitute a menace to the health, safety or general welfare of the public. The permit holder shall cause the suspended or revoked identification badge to be delivered to the clerk within five business days from notification. (Ord. BL2012-283 § 1, 2013)

6.64.140 Nonrenewal or revocation of permit.

The clerk shall revoke and shall not renew any permit issued pursuant to this chapter if the clerk determines that any of the following have occurred:

A. Fraud, misrepresentation or false statement in the application for the permit or any renewal application, including, without limitation, representations made as to the criminal history of any person to be authorized to solicit under the permit;

B. Failure to obtain a business tax license as required by law;

C. Failure to supervise solicitation conducted under the permit so as to reasonably ensure that such solicitation is in compliance with the terms of the permit and with the provisions of this chapter; or

D. Authorizing, condoning or knowingly tolerating any unlawful solicitation or any solicitation conducted in such a manner as to constitute a menace to the health, safety or general welfare of the public. (Ord. BL2012-283 § 1, 2013)

6.64.150 Records.

The clerk shall maintain records showing each permit issued and the alleged violations of this chapter. (Ord. BL2012-283 § 1, 2013)

6.64.160 Appeals for denial or revocation of permit—Hearings.

Upon the denial, suspension, or revocation of a commercial solicitation permit by the clerk, the applicant or permit holder shall be entitled to a hearing before the clerk in accordance with the provisions of this section:

A. A request for a hearing shall be in writing and filed with the clerk within five days of the clerk's decision to deny an initial application or renewal, or to suspend or revoke a permit.

B. The clerk shall notify the applicant or permit holder by United States mail of the hearing date.

C. The hearing date shall fall within twenty-five days from the date the clerk receives the request, unless the applicant requests a later date and the clerk grants the request.

D. The applicant or permit holder shall have a minimum of five days of notice before a hearing may be held. An applicant or permit holder is considered notified upon their receipt of notification from the clerk.

E. At the hearing, the applicant or permit holder may present evidence as to why his/her initial application or renewal should not be denied, or why his/her permit should not be suspended or revoked.

F. The clerk has the authority to subpoena witnesses to testify before hearings.

G. Within five days of the hearing, the clerk shall state in writing the reason for the clerk's decision that will either affirm or reject the denial of an initial application, renewal, suspension, or the revocation of a permit and mail it by United States mail to the address of the applicant as listed on the application.

H. Any denial after a hearing of an initial application for a permit may be appealed by writ of certiorari to the Circuit or Chancery Courts of Davidson County within sixty days from the date of the hearing. (Ord. BL2016-384 § 4, 2016; Ord. BL2012-283 § 1, 2013)

6.64.170 Administrative regulations.

The clerk is authorized to promulgate rules and regulations as are necessary to effectuate the implementa-

tion, administration and enforcement of this chapter. (Ord. BL2012-283 § 1, 2013)

6.64.180 Violations and penalties.

In addition to the revocation, suspension or denial of a permit or identification badge issued under this chapter, any person who violates any of the provisions of this chapter shall be subject to a penalty of fifty dollars per day per violation. Each violation of this section shall be deemed a separate offense. (Ord. BL2024-509 § 6, 2024; Ord. BL2012-283 § 1, 2013)

6.64.190 Severability.

If any provision or clause of this chapter or the application thereof to any person or circumstance is held to be unenforceable by a court of competent jurisdiction, such clause or provision and the remainder of this chapter shall remain effective and enforceable to the fullest extent allowed by law, and all clauses and provisions of this chapter are hereby declared to be severable. (Ord. BL2012-283 § 1, 2013)

Chapter 6.68

SOLID FUEL SALES OR HAULING

Sections:

6.68.010	**Definitions.**
6.68.020	**Hauling emergency supply for own use.**
6.68.030	**Permit required.**
6.68.040	**Application—Notice of changes.**
6.68.050	**Bond required.**
6.68.060	**Permit conditions.**
6.68.070	**Application—Notice of approval or disapproval—Issuance of permit.**
6.68.080	**Expiration of permit.**
6.68.090	**Special permits issued when.**
6.68.100	**Permit register required.**
6.68.110	**Permit—Refusal to grant—Revocation.**
6.68.120	**Display of vehicle information.**
6.68.130	**Certified registration sticker.**
6.68.140	**Registration fees.**
6.68.150	**Maximum load for coal trucks.**
6.68.160	**Change in supply source.**
6.68.170	**Inspection authority—Right of entry.**

6.68.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Fuel peddler" means any person who lawfully distributes, advertises, sells or offers for sale or delivery solid fuel in quantities of less than one thousand pounds in bags, baskets or bushel measures. Nothing in this chapter shall be construed to govern a fuel peddler or his vehicle duly licensed under the ordinances of the metropolitan government.

"Haul," or any other word derived from the word "haul," means and shall pertain to the hauling, transporting, distributing or delivering of solid fuel for use or consumption in the metropolitan government area by any person, regardless of such person's interest in the solid fuel other than its haulage, transportation, distribution or delivery. Any person engaged in such practice shall be termed a "fuel hauler."

"Solid fuel" means any anthracite, semianthracite, bituminous or lignite coal, brickette, boulets, coke, gashouse coke, petroleum coke, carbonized coal, petroleum carbon or any other mined, manufactured, processed or patented fuel not sold by liquid or metered measure.

"Solid fuel permit" means a certificate of authority under which any person may lawfully produce or haul solid fuel for use or consumption in the metropolitan government area.

"Storage," or any other word derived from the word "store," means and shall pertain to solid fuel stored for immediate or future hauling.

"Vehicle" means any wagon, cart, truck, machine, tractor, trailer, semitrailer, automobile or any vehicle of any kind used for the importing or hauling of solid fuel on the streets of the metropolitan government area. (Prior code § 42-1-32)

6.68.020 Hauling emergency supply for own use.

Nothing in this chapter shall be construed to govern or prohibit any person in the hauling of an emergency supply of solid fuel in an amount not to exceed two hundred fifty pounds of solid fuel for his own individual use, if such limited supply of solid fuel has been procured from a permittee under this article; provided, that such emergency supply of solid fuel shall be in compliance with all metropolitan government ordinances regulating smoke control and the production, handling, importing, storing, selling, transporting, hauling, advertising, delivering, distributing, use or consumption of solid fuel. (Prior code § 42-1-33)

6.68.030 Permit required.

No person shall produce, import or haul any solid fuel, nor shall any person store any solid fuel for immediate or future hauling for use in the metropolitan government area, without first obtaining a solid fuel permit, as provided in this chapter. (Prior code § 42-1-34)

6.68.040 Application—Notice of changes.

A. Any person making application for a solid fuel permit shall file a statement on a printed form provided by the sealer of weights and measures for that purpose, stating:

1. The name, residence and location of the business place of the applicant;

2. If the applicant is a firm, the name of each member of the firm and the location of the chief place of business;

3. If the applicant is a corporation, the names of the president, secretary and the business manager or superintendent thereof, and the addresses of such persons;

4. The precise nature of the business to be carried on by the applicant;

5. The name of the person in charge of each business place of the applicant in the metropolitan government area where solid fuel is to be hauled, transported, stored,

imported, delivered, used, handled, sold, traded or exchanged, delivered, distributed, advertised or offered for sale, delivery, distribution, use or consumption;

6. The location of the branches, locations or yards owned or controlled by the applicant, and the average annual quantity of solid fuel hauled and distributed for use or consumption within the metropolitan government area;

7. Where solid fuel is imported or hauled from localities outside of the metropolitan government area or purchased from other parties within the metropolitan government area, a detailed statement of the localities or places from which such solid fuels are brought and the names and post office addresses of the persons supplying the same, the location of the shipping stations, if any, and a statement of the average quantity received from each person annually;

8. The number of vehicles used in the business of the applicant and the state vehicle license number and a description of each vehicle, including the weight and capacity of each vehicle to be used in hauling solid fuel.

B. If any change is made in the firm, officers, managers, nature of business, vehicles or names or addresses of shippers or other persons supplying solid fuel, or in any other matter of information required by this section, written notice thereof shall forthwith be given to the sealer of weights and measures for insertion in and correction of the records of the division of purchases. (Prior code § 42-1-35)

6.68.050 Bond required.

No solid fuel permit shall be issued or remain in force unless the applicant for the permit or the permittee has complied with this section with the respect to its surety requirements as follows:

A. Before any application for a permit shall be approved, the applicant shall file with the sealer of weights and measures a bond executed by some surety company, insurance company, association or other insurer authorized and licensed to transact business in the state, such bond to be in the name of the metropolitan government, in the penal sum of one thousand dollars.

B. The bond shall be conditioned to save harmless any person or purchaser involved in any transaction with the permittee so bonded, pertaining to the importing, producing or hauling of solid fuel for consumption in the metropolitan government area, and further conditioned that the person obtaining such permit shall not violate any of the provisions of this chapter or any other ordinance or law regulating the handling, storing, importing, selling, hauling, trading or exchanging, transporting, delivering, distributing, using, consuming or advertising or offering for sale, delivery, distribution, use or consumption of solid fuel in the metropolitan government area, and further conditioned that he will pay all fees required herein or in any other ordinance, together with all fines, penalties and forfeitures which may be adjudged against him under the provisions of this chapter or any other law or ordinance regulating the handling, storing, using, consuming, importing, selling, hauling, trading or exchanging, transporting, delivering, distributing, advertising or offering for sale, delivery or distribution of solid fuel for use or consumption in the metropolitan government area.

C. Such bond shall be for the use and benefit of the metropolitan government and persons who shall purchase, use, consume or be financially interested in any solid fuel hauled, imported or produced in the metropolitan government area. Such bond shall be further conditioned to give assurance and guarantee to the metropolitan government and all other persons against loss or damage or fines or penalties, by reason of any violation on the part of the permittee hereunder of this chapter or any other ordinance of the metropolitan government regulating the handling, storing, importing, selling, hauling, trading or exchanging, transporting, delivering, distributing, advertising or offering for sale, delivery, distribution, use or consumption of solid fuel.

D. Each surety bond shall be in the usual form of surety bond, and shall contain the following endorsement:

> The surety bond to which this endorsement is attached is designed and issued to comply with the provisions of Chapters 6.68 and 6.76 of the Code of the Metropolitan Government of Nashville and Davidson County, which requires, among other things, the furnishing of a bond and the payment of fees for the issuance of permits and prescribes the powers and duties of the sealer of weights and measures and provides penalties for the violation of such chapters. Should anything contained in this bond conflict with the provisions of such chapters, then the provisions of such chapters shall prevail to the extent of the coverage of the limits of liability described in such chapters. It is understood and agreed that the right of any purchaser, consumer or any other person thereunder shall not be affected by any violation of any provisions of the bond; but all the terms and conditions of the bond shall remain in full force and be binding between the company and the assured, such Metropolitan Government and any person suffering loss or damage or prosecution by reason of any violation of such chapters by, or on the part, of the assured. It is also understood and agreed that no cancellation of this bond at the request of the named assured or the company shall become effective until after the expiration of the ten days' written notice of

such proposed cancellation has been filed with the sealer of weights and measures of such Metropolitan Government. (Prior code § 42-1-36)

6.68.060 Permit conditions.

No solid fuel permit shall be issued to any person to produce, import or haul any solid fuel or to store any solid fuel for immediate or future hauling for use in the metropolitan government area unless such person maintains a regular yard within the metropolitan government area or unless such person maintains a regular coal yard within a mile and one-half of the corporate limits of the metropolitan government area, equipped with scales approved by the metropolitan sealer of weights and measures, and unless such person maintains on duty in such yard, during regular working hours, at least one licensed weigher, and unless the solid fuel in the yard shall be subject to inspection by the sealer of weights and measures at all reasonable hours. (Prior code § 42-1-37)

6.68.070 Application—Notice of approval or disapproval—Issuance of permit.

A. Upon approval or disapproval of any application for a permit under this chapter, the sealer of weights and measures shall post a public notice of this decision in his office. He shall, at the same time, transmit notice of his decision to the applicant and to the purchasing agent.

B. If, after ten days from the date of a decision of the sealer of weights and measures, approving an application, no protest or appeal has been filed, the division of purchases shall issue such applicant a solid fuel permit. (Prior code § 42-1-38)

6.68.080 Expiration of permit.

Each solid fuel permit issued shall run until the thirty-first day of March next succeeding. (Prior code § 42-1-40)

6.68.090 Special permits issued when.

A special permit may be issued to a consumer, authorizing importation of a specified quantity of coal upon specified weights and measures for the inspection of such coal prior to unloading, for which a fee of twenty-five cents shall be collected. Any person hauling coal within the metropolitan government area under such special permit shall keep a duplicate copy thereof in his possession. (Prior code § 42-1-39)

6.68.100 Permit register required.

The sealer of weights and measures shall keep a public register of each solid fuel permit issued, by the number thereof, the name of the person to whom it is issued, the date when issued, the date of expiration of the same, the amount paid therefor, the amount of the bond furnished by the permittee upon making application for such permit, together with the name and address of the surety, the number of vehicles, a description of each vehicle registered and such other information as he may reasonably require and such information as may be required by this chapter or any other ordinance with respect to the storing, handling, importing, selling, hauling, trading or exchanging, transporting, delivering, distributing, advertising or offering for sale, delivery or distribution, use or consumption of any solid fuel in the metropolitan government area. (Prior code § 42-1-41)

6.68.110 Permit—Refusal to grant—Revocation.

A. The sealer of weights and measures may refuse to grant a solid fuel permit and he may revoke the permit of any permittee who, after April 7, 1943, shall have been convicted of violating any ordinances of the former City of Nashville, Davidson County or the metropolitan government concerning the use or consumption of solid fuel, the inspection and regulation of the handling of solid fuel or the inspection of the sale of solid fuel, or shall have been convicted of misrepresenting the size, grade, quality, weight or method of preparation of solid fuel, or when any requirement of Chapters 6.68 and 6.76 is not complied with, or when the sealer of weights and measures shall have found the issuance or continuation of any such permit will not be consistent with the public welfare.

B. The sealer of weights and measures, with the approval of the division of purchases, may revoke any permit for any of the reasons for which they may refuse to issue a permit. (Prior code § 42-1-42)

6.68.120 Display of vehicle information.

Every person who shall haul any solid fuel shall display and keep displayed at all times, in a prominent place on the outer left side and outer right side of each vehicle used for such hauling, his name, his solid fuel permit number and his address by street and number, in letters not less than three inches in height; and he shall keep such printed name, address and permit number in such condition that the same shall be legible. (Prior code § 42-1-43)

6.68.130 Certified registration sticker.

For each truck registered under the terms of this chapter, the sealer of weights and measures shall provide a sticker certifying that the truck is properly registered for the current year. Such sticker shall be attached to the windshield of the truck in the lower left-hand corner thereof. (Prior code § 42-1-44)

6.68.140 Registration fees.

Every person who shall make application for a solid fuel permit shall pay a fee of two dollars and fifty cents for the annual registration fee and registration cost of one truck. A fee of twenty-five cents shall be charged as registration cost for each additional truck registered under such solid fuel permit. (Prior code § 42-1-45)

6.68.150 Maximum load for coal trucks.

No vehicle for the hauling of coal shall haul a load in excess of one and one-half the factory rating of such vehicle. (Prior code § 42-1-48)

6.68.160 Change in supply source.

If a permittee under this chapter wishes to purchase solid fuel from a source of supply not given on the list submitted at the time the application for a solid fuel permit is made, the sealer of weights and measures shall be notified. (Prior code § 42-1-46)

6.68.170 Inspection authority—Right of entry.

In the general performance of their duties or for the purpose of obtaining facts with respect to the compliance with this chapter, the sealer of weights and measures and his inspectors are authorized to enter at all reasonable hours upon and into any buildings, establishments, premises and enclosures in or from which they have reason to believe that the provisions of this chapter are being violated, and to inspect or examine such buildings, establishments, premises or enclosures, and shall be permitted to examine all books, papers and records pertaining to solid fuel. (Prior code § 42-1-47)

Chapter 6.72

TAXICABS

Sections:

6.72.010 Definitions.

Article I. Certificate of Public Convenience and Necessity

6.72.020 Required.
6.72.030 Application—Information and fees required.
6.72.035 Annual renewal.
6.72.040 Request for additional permits.
6.72.050 Proof of financial responsibility required.
6.72.060 Findings—Issuance of certificate or additional permits.
6.72.065 Commission notification.
6.72.070 Quarterly reporting and fees—Disposition of revenue.
6.72.080 Transfers—Fee.
6.72.090 Probation, suspension and revocation.

Article II. Drivers' Permits

6.72.100 Permit required—Violations and term.
6.72.110 Application—Information and fees required.
6.72.130 Criminal background investigation.
6.72.135 Reserved.
6.72.140 Application—Approval or disapproval.
6.72.150 Issuance—Contents.
6.72.155 New application after denial.
6.72.160 Expiration—Issuance and replacement fee.
6.72.165 Hospitality training program—Participation required.
6.72.170 Display of permit.
6.72.175 Company affiliation.
6.72.180 Suspension and revocation.
6.72.185 Revocation of Tennessee driver's license.
6.72.190 Compliance with provisions.

Article III. Equipment and Operation

6.72.200 Vehicle to display company name, color scheme insignia and numbering—Restrictions.
6.72.210 Liability insurance agreement.
6.72.220 Duty to render service—Business requirements.
6.72.230 Daily manifests.
6.72.240 Inspection and maintenance of vehicles—Compliance required.
6.72.245 Vehicle age limit.
6.72.250 Rate schedule.
6.72.260 Rate changes—Display in vehicle.
6.72.265 Taximeters.
6.72.270 Payment of fare and receipts.
6.72.280 Operating records and reports.
6.72.290 Accidents.
6.72.300 Taxicab stands—Prohibited vehicles.
6.72.310 Taxicab stands—Established—Regulations.
6.72.320 Passengers—Maximum number.
6.72.330 Passengers—Additional passengers permitted when—Charges.
6.72.340 Passengers—Receiving and discharging by drivers.
6.72.350 Passengers—Refusal to pay legal fare.
6.72.360 Refusal to carry orderly passengers.
6.72.365 Disposition of disorderly passengers.
6.72.370 Soliciting passengers.
6.72.390 Soliciting business.
6.72.400 Prohibited manner of soliciting.
6.72.405 Map requirement.
6.72.410 Toplight required.
6.72.415 Driver appearance.
6.72.420 Advertising on vehicles.
6.72.425 Vehicle safety devices.
6.72.430 Prohibited acts by driver.
6.72.435 Taxicab passenger's bill of rights.
6.72.440 Taxicab driver's bill of rights.
6.72.445 Inspectors to observe conduct—Reporting or citing violations.
6.72.450 Contract rates.

Article IV. Violations—Civil Penalty Schedules

6.72.500 Violation—Penalties.

6.72.010 Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them by this section:

"Approved mechanic" means a mechanic on a list maintained by the commission director. The list shall contain the name of each mechanic that has applied to the director for inclusion and who (1) has met all requirements of the National Institute for Automotive Service Excellence, (2) does not own, lease or drive a taxicab, (3) has no financial interest in any taxicab vehicle, company, or taximeter installation/repair service, and (4) is not employed by any taxicab or taximeter business.

"Certificate" means a certificate of public convenience and necessity issued by the metropolitan transportation licensing commission, authorizing the holder thereof to conduct a taxicab business within the metropolitan government area.

"Cruising" means the driving of a taxicab on the streets, alleys or public places of the metropolitan government area in search of or soliciting prospective passengers for hire.

"Discontinued operations" means any cessation of business, including the operation of taxicabs, carrying of fares, dispatch of calls, receipt of requests for services by telephone, or other provision of services, for more than twenty-four continuous hours.

"Driver's permit" means the permission granted by the metropolitan transportation licensing commission in accordance with Article II of this chapter authorizing a person to operate a taxicab upon the streets and roads of the metropolitan government area.

"Holder" means a person to whom a certificate of public convenience and necessity has been issued.

"Lease driver" means a taxicab driver who has leased a taxicab from a certificate holder or taxicab owner.

"Manifest" means a daily record prepared by a taxicab driver of all trips made by such driver, showing time and place of origin, destination, number of passengers and the amount of fare of each trip.

"Metropolitan transportation licensing commission" means the administrative agency of the metropolitan government that, along with the department of public works serving in its role of providing staff to the commission, has exclusive jurisdiction over the licensing and regulation of all vehicles for hire as set forth in Chapter 2.100 of this Code.

"Owner" means the person who holds the legal title of the taxicab.

"Person" means any individual, partnership, corporation, association or public or private organization of any character.

"Rate card" means a card issued by the metropolitan transportation licensing commission for display in each taxicab, which contains the rates of fare then in force.

"Safety certificate" means a document from an approved mechanic certifying that a particular vehicle meets all vehicle safety standards set forth in this chapter and in regulations adopted pursuant to this chapter.

"Smart taximeter" means a system of hardware or software that integrates a taximeter and other components together to perform functions required by this chapter.

"Taxicab" means a motor vehicle regularly engaged in the business of carrying passengers for hire, donation, gratuity or any other form of remuneration, having a seating capacity of less than nine persons and not operated on a fixed route.

"Taxicab stand" means a place alongside a street, or elsewhere, where the metropolitan transportation licensing commission has authorized a holder of certificate of public convenience to park for picking up or discharging passengers.

"Taximeter" means a meter instrument or device attached to a taxicab which mechanically measures the distance driven and the waiting time upon which the fare is based.

"Vehicle for hire" means any public conveyance operated to transport fourteen or fewer passengers for compensation. Excluded from this definition are vehicles exclusively regulated by the state department of safety.

"Waiting time" means the time when a taxicab is not in motion from the time of acceptance of a passenger to the time of discharge, but such term does not include any time that the taxicab is not in motion if due to any cause other than the request, acts or fault of a passenger. (Amdt. 1 to Ord. BL2025-812 § 1, 2025; Ord. BL2025-812 § 1, 2025; Ord. BL2012-281 § 2, 2012; Ord. BL2000-325 § 1 (part), 2000)

Article I. Certificate of Public Convenience and Necessity

6.72.020 Required.

No person shall operate or permit a taxicab, as defined in Section 6.72.010, owned or controlled by him or her to operate upon the streets and roads in the area of the metropolitan government without having first obtained a certificate of public convenience and necessity from the metropolitan transportation licensing commission. (Ord. BL2000-325 § 1 (part), 2000)

6.72.030 Application—Information and fees required.

A. An application for a certificate of public convenience and necessity shall be filed with the metropolitan transportation licensing commission upon forms provided by the commission staff and upon the payment of a nonrefundable fee in an amount to be established by the commission based upon the cost of processing the application.

B. Such application shall, at a minimum, require the following information:

1. The name and address of the applicant, which must be in the metropolitan government area;

2. Proof of United States citizenship or residency authorization by the United States Immigration and Naturalization Service;

3. The financial status of the applicant, including any judgments against the applicant, together with information regarding the amount of any such judgment and the nature of the transaction or acts giving rise to such judgments. This information shall be presented in a certified financial statement current within thirty days of the date of application submission;

4. The experience of the applicant in the transportation of passengers;

5. Any facts and information, as listed in Section 6.72.060(B), which the applicant believes tends to prove that public convenience and necessity require the granting of the certificate;

6. The number of vehicles and their year models to be operated or controlled by the applicant and the location of proposed depots and terminals. A new applicant must have no fewer than twenty vehicles. An applicant for renewal must continually sustain no fewer than fifteen vehicles for renewal;

7. The color scheme and insignia to be used to designate the vehicles of the applicant;

8. Any commitment to deliver services in areas not currently adequately served or service improvements above the level of service generally available from taxicabs currently operating in the metropolitan government area;

9. Procedures for training drivers;

10. Rules and regulations governing driver appearance and conduct;

11. Such further information as the metropolitan transportation licensing commission or its director may require.

C. An applicant for a certificate of public convenience and necessity will be ineligible for consideration if:

1. Any of the partners, officers or directors are under twenty-one years of age and/or the taxicab business has no separate legal existence beyond a shareholder, owner, or partner who is under eighteen years of age;

2. Any of the partners, officers or directors have been convicted of, forfeited a bond, or pleaded guilty or nolo contendere to a felony or offense involving a controlled substance, prostitution, assignation, obscenity, or any crime of a sexual nature in any jurisdiction within five years immediately preceding the date of application.

3. Any of the owners, partners, officers or directors have violated any portion of this chapter within five years immediately preceding the date of application.

4. The application or any portion of the application is incomplete or contains incorrect or false information.

D. The commission shall conduct hearings for the issuance of certificates of public convenience and necessity.

1. The metropolitan transportation licensing commission director shall fix a time and place for a public hearing, to be held annually, to review applications for certificates of public convenience and necessity.

2. No such hearing shall be held to review applications for certifications of public convenience and necessity without giving due notice of the time and place of such hearing to each applicant and to all current certificate holders. Additionally, notice shall be given to the general public by posting notice of the hearing on the metropolitan transportation licensing commission home web page at least five days prior to the hearing.

3. Any person may file with the metropolitan transportation licensing commission a memorandum or letter in support of or opposition to the issuance of a certificate of public convenience and necessity.

4. The metropolitan transportation licensing commission may, in its discretion, call special meetings in addition to the annual meeting for the consideration of new certificates of public convenience and necessity.

5. There shall be a nonrefundable fee, in an amount to be established by the commission based upon the cost of processing the application, charged for each request for certificates, payable at the time of application. An additional fee in an amount to be established by the commission shall be charged for the issuance of each approved permit associated with the certificate.

6. The notice provisions set forth in this section shall be followed when special meetings are called. (Ord. BL2016-329 §§ 1—4, 2016; Ord. BL2011-870 § 1, 2011; Ord. BL2000-325 § 1 (part), 2000)

6.72.035 Annual renewal.

All certificates of public convenience and necessity shall expire on August 31st of the year following the date on which the certificate was issued. All certificates may be renewed by the director for each successive year between August 1st and August 31st of each year. A renewal fee in an amount to be established by the commission based upon the cost of processing the application for each approved permit to operate a taxicab shall be charged at the annual renewal of the certificate of public convenience and necessity. Failure to renew a certificate by August 31st shall result in forfeiture of the certificate. (Ord. BL2016-329 § 5, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.040 Request for additional permits.

A. The metropolitan transportation licensing commission shall fix a time and place for a public hearing, to be held annually, to review applications from current certificate holders for additional taxicab permits.

B. Notice of such hearing shall be given to each applicant and to all persons to whom certificates of public convenience and necessity have been previously issued. Due notice shall be given to the general public by posting the notice on the metropolitan transportation licensing commission home website at least three days, but not more than five days, prior to the public hearing.

C. Any person may file with the metropolitan transportation licensing commission a memorandum or letter in support of or in opposition to a request for additional taxicab permits.

D. The metropolitan transportation licensing commission may, in its discretion, call special meetings in addition to the annual meeting for the consideration of applications for new taxicab permits.

E. There shall be a nonrefundable fee, in an amount to be established by the commission based upon the cost of processing the application, charged for each request for additional permits, payable at the time of the application. An additional licensing fee in an amount to be established by the commission shall be charged for the issuance of each approved permit.

F. The notice provisions enumerated in this section shall be followed when special meetings are called. (Ord. BL2016-329 §§ 6, 7, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.050 Proof of financial responsibility required.

No certificate of public convenience and necessity shall be issued or continued in operation unless there is in full force and effect proof of financial responsibility for each vehicle, in an amount that is in compliance with the greater of the minimum limits set by the law of the State of Tennessee for owners and operators of motor vehicles or the minimum amount as is established by the commission. Such security shall inure to the benefit of any person who is injured or who sustains damage to property proximately caused by the negligence of a holder, his servants or his agents. Proof of financial responsibility shall be filed in the office of the metropolitan transportation licensing commission and shall have as a surety thereon a surety company authorized to do business in the State of Tennessee. (Ord. BL2000-325 § 1 (part), 2000)

6.72.060 Findings—Issuance of certificate or additional permits.

A. If the metropolitan transportation licensing commission finds that further or additional taxicab service in the metropolitan government area is required by the public convenience and necessity and that the applicant is fit, willing and able to provide such public transportation and to conform to the provisions of this chapter and the rules promulgated by the metropolitan transportation licensing commission, the metropolitan transportation licensing commission may issue a certificate of public convenience and necessity, stating the name and address of the applicant, the number of vehicles authorized upon such certificate and the date of issuance.

B. In making the above findings, the metropolitan transportation licensing commission shall, at a minimum, take into consideration the number of taxicabs already in operation, whether existing transportation is adequate to meet the public need; the character, experience, financial condition and responsibility of the applicant, and such criteria as may be adopted by the commission in its rules. (Ord. BL2000-325 § 1 (part), 2000)

6.72.065 Commission notification.

Persons granted certificates of public convenience and necessity under this article shall not change the address, company name, officers, ownership, or otherwise make any material change in the company or its identity from that set forth upon the taxicab company's original application without prior notification and approval to commission staff. Any such proposed material changes shall be brought before the commission for consideration prior to implementation. (Ord. BL2000-325 § 1 (part), 2000)

6.72.070 Quarterly reporting and fees—Disposition of revenue.

A. Persons granted certificates of public convenience and necessity under this article shall keep the metropolitan transportation licensing commission advised, quarterly,

of the cabs being insured and operated, and shall, quarterly, pay to the metropolitan transportation licensing commission a fee in an amount to be established by the commission based upon the cost of processing the application for each of its cabs in operation, including those vehicles which as of the reporting date may be temporarily out of commission for repair, etc., as a condition precedent to the operation of such vehicle as a taxicab; and failure to comply herewith shall subject such person to the penalty provided in Section 1.01.030. The time to commence reporting quarterly and paying of the quarterly fee shall be established by rule and regulation of the metropolitan transportation licensing commission. Appropriate identification shall be issued to the reporting companies for attachment to the vehicle upon which the required fee has been paid, evidencing compliance with this section.

B. The metropolitan transportation licensing commission shall turn over to the metropolitan treasurer all funds derived from the payment specified, and the metropolitan treasurer shall keep a separate account thereof. (Ord. BL2016-329 § 8, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.080 Transfers—Fee.

A. No certificate of public convenience and necessity may be sold, leased, assigned, mortgaged or otherwise transferred, nor may there be any modification of ownership as to stock, new or additional partners, etc., by a holder of a certificate of public convenience and necessity without the prior consent of the metropolitan transportation licensing commission. An application for a transfer shall be filed with the metropolitan transportation licensing commission upon forms provided by the metropolitan government and upon the payment of a nonrefundable fee, in an amount to be established by the commission based upon the cost of processing the application by the transferee of a certificate or stock in a company holding a certificate, or any new partner in a business holding a certificate.

B. An applicant for the transfer of a certificate will be ineligible for consideration if:

1. Any of the partners, officers or directors are under twenty-one years of age and/or the taxicab business has no separate legal existence beyond a shareholder, owner, or partner who is under the age of eighteen years of age;

2. Any of the owners, partners, officers or directors have been convicted of, or had a bond forfeited, or pleaded guilty or nolo contendere to a felony or any crime involving moral turpitude, or offense involving a controlled substance, prostitution, assignation, obscenity, or any crime of a sexual nature in any jurisdiction within the five years immediately preceding the date of application.

3. Any of the owners, partners, officers or directors have violated any portion of this chapter within the five years immediately preceding the date of application.

4. Any portion of the application is incomplete or contains incorrect or untruthful information.

C. Upon the filing of an application to transfer a certificate of public convenience and necessity, the metropolitan transportation licensing commission shall fix a time and place for a public hearing on the application. (Ord. BL2000-325 § 1 (part), 2000)

6.72.090 Probation, suspension and revocation.

A. A certificate of public convenience and necessity issued under the provision of this article may be placed on probation, revoked or suspended by the metropolitan transportation licensing commission if there holder thereof has:

1. Violated any of the provisions of this chapter;

2. Discontinued operations for more than five days;

3. Has violated any provision of this Code or other ordinances, laws or regulations of the metropolitan government or the laws of the United States or the State of Tennessee or any other state, the violations of which reflect unfavorably on the fitness of the holder to offer public transportation.

4. Made a misrepresentation or false statement when applying for a certificate of public convenience and necessity, additional permits, or for the transfer of a certificate.

B. Prior to suspension or revocation, the holder shall be given notice of the proposed action to be taken and the general basis for the proposed action and shall have an opportunity to be heard. (Ord. BL2016-329 §§ 9—11, 2016; Ord. BL2000-325 § 1 (part), 2000)

Article II. Drivers' Permits

6.72.100 Permit required—Violations and term.

A. All owners of vehicles for hire being operated as taxicabs are required to maintain a current driver's permit and/or owner's permit. The permit shall be applied for and issued in the manner provided by in this chapter and Chapter 2.100 of this Code.

B. No person shall operate a taxicab for hire upon the streets and roads of the metropolitan government area, and no person who owns or controls a taxicab shall permit such vehicle to be so driven and no taxicab licensed by the metropolitan government shall be so

driven at any time for hire, unless the driver of such taxicab shall first obtain and shall have then in force a taxicab driver's permit issued under the provisions of this article.

(C) A person commits an offense if he or she operates a taxicab in the metropolitan area without a driver's permit issued by the metropolitan transportation licensing commission.

(D) A business commits an offense if it employs or otherwise allows a person to operate a taxicab owned, controlled or operated by the permittee unless the person has a driver's permit issued by the metropolitan transportation licensing commission and the commercial automobile liability insurance agreement required pursuant to Section 6.72.210(A).

(E) Each permit shall be valid for one year and shall be subject to renewal pursuant to the provisions set forth in this article. (Ord. BL2016-329 §§ 12, 13, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.110 Application—Information and fees required.

A. An application for a taxicab drivers permit shall be filed with the metropolitan transportation licensing commission and shall comply with regulations set forth by the metropolitan transportation licensing commission or the metropolitan transportation licensing commission director.

B. Such application shall be certified under oath and shall at a minimum contain the following information:

1. The name, residential address, telephone number and date of birth of the applicant. No applicant under twenty one years of age will be accepted.

2. The names, addresses, telephone numbers, and signatures of four persons, at least one of whom is a resident of the metropolitan government area, who have known the applicant for a period of at least one year and who will provide information regarding the applicant as specified by the commission;

3. Any other request for information the metropolitan transportation licensing commission director considers necessary or relevant.

C. The applicant shall provide copies of the following documents in order to submit his application:

1. A valid Tennessee driver license that complies with all applicable requirements of state law as further specified in rules to be adopted by the metropolitan transportation licensing commission.

2. A Social Security card or birth certificate.

3. If a resident alien, a current work permit or other valid United States Immigration and Customs Enforcement document.

4. On forms provided by the metropolitan transportation licensing commission director, the applicant will provide a statement under penalty of perjury of their physical and mental fitness to act as for-hire driver. Such other information as may be reasonably required by regulation promulgated by the metropolitan transportation licensing commission pursuant to this chapter.

5. Certification that the driver has completed the certificate holder's mandatory driver training program approved by the metropolitan transportation licensing commission director.

D. Each application shall be accompanied by an official driver record issued by the Tennessee Department of Safety, no more than thirty days previous to the date of application.

E. The applicant shall be ineligible to receive a permit if:

1. He or she has been convicted, pled guilty, or pled nolo contendre in the last five years for any of the following offenses involving bodily injury or death and in the last three years for any of the following offenses not involving injury or death:

a. Hit and run;

b. Driving under the influence of an alcoholic beverage or drug;

c. Reckless driving;

d. Felony Reckless endangerment.

2. For an initial permit, no more than three moving violations within the last three years and no more than two moving violations in the last year will be allowed.

3. For renewal permit, no more than four moving violations within the last three years and no more than two moving violations in the last year.

F. At the time the application is filed, the applicant shall pay to the metropolitan transportation licensing commission a fee in an amount to be established by the commission based upon the cost of processing the application plus the cost of the investigation. (Ord. BL2016-329 §§ 14—23, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.130 Criminal background investigation.

A. Upon receiving an application for a driver's permit from an applicant, the applicant must undergo an identification and background check as required by state law as more specifically provided by rules or regulations adopted by the metropolitan transportation licensing commission. Upon receipt of the background check report, the metropolitan transportation licensing commission director shall determine whether the applicant's background check disqualifies him or her from eligibility for a driver's permit.

B. Additionally, certificate holder shall check the National Sex Offender Database to verify whether the applicant is listed on the database, and shall certify under oath to the metropolitan transportation licensing commission that it has conducted this check and verified that the applicant does not appear on the database. Any applicant listed on the database shall be disqualified for eligibility for a driver's permit.

C. Any applicant shall, in addition to any disqualifications listed elsewhere in this chapter, be disqualified if the applicant:

1. Has been convicted, pleaded guilty, nolo contendere, is on probation or has been placed on judicial diversion pursuant to Tenn. Code Ann. Sec. 40-35-313, or been released from incarceration, probation or parole within a period of seven years prior to the date of application for violation of any of the following criminal offenses under the laws of Tennessee, any other state, or the United States of America:

- Homicide,
- Rape,
- Aggravated assault,
- Kidnapping,
- Robbery,
- Burglary,
- Domestic assault or domestic violence,
- Child sexual abuse,
- Any sex-related offense,
- Leaving the scene of an accident,
- Criminal solicitation, or criminal attempt to commit any of above,
- Perjury or false swearing in making any statement under oath in connection with the application for a driver's permit, or
- The felony possession, sale or distribution of narcotic drugs or controlled substances.

2. If, at the time of application, the applicant is charged with any offenses in 1. above, consideration of the application shall be deferred until entry of a plea, conviction, acquittal, dismissal, or other final disposition of the charges.

3. Has been convicted for a period of two years prior to the date of application of the violation of two or more sections of this Code or other ordinances governing the operation of vehicles for hire.

4. Has failed to disclose any criminal conviction, except traffic citations, on the application for a permit. (Ord. BL2016-329 §§ 24, 25, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.135 Reserved.

Editor's note—Ord. BL2025-812, § 2, adopted May 20, 2025, repealed § 6.72.135, which pertained to test required and derived from Ord. BL2021-921 § 1, 2021; Ord. BL2016-329 §§ 26, 27, 2016; Ord. BL2000-325 § 1 (part), 2000.

6.72.140 Application—Approval or disapproval.

A. The metropolitan transportation licensing commission or its staff, shall, upon the consideration of the application and the reports and certificate required to be attached thereto, approve or reject the application. The applicant must appear in person. Any applicant disapproved by the commission staff may request an appearance within ten days, before the commission for consideration of the application.

B. The licensing commission, or its director, may issue a temporary permit prior to receiving the results of the police investigation. (Ord. BL2016-329 § 28, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.150 Issuance—Contents.

Upon approval of an application for a taxicab drivers permit, the metropolitan transportation licensing commission shall issue a permit to the applicant pursuant to the format provided by the commission director. (Ord. BL2016-329 § 29, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.155 New application after denial.

Upon denial of an application for a taxicab drivers permit, no new application shall be considered for a period of six months. (Ord. BL2016-329 § 30, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.160 Expiration—Issuance and replacement fee.

A. Each taxicab driver permit shall be issued for a period of one year or any part thereof, or for such other time period the metropolitan transportation licensing commission prescribes, with all permits issued pursuant to this chapter expiring on September 30th of each year.

B. A permit shall be issued to qualified applicants upon the payment of a fee in an amount to be established by the commission plus the cost of investigation. If the permit for the preceding issuance has been revoked, no new permit shall be issued without prior commission approval. Permits may be renewed by the director between August 15th and September 30th of each year. A renewal fee in an amount to be established by the commission shall be charged for each permit issued. A fee in an amount established by the commission shall be charged for all replacement or temporary taxicab driver permit. Such fees shall be in addition to the cost of any

investigation. (Ord. BL2016-329 §§ 31, 32, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.165 Hospitality training program—Participation required.

A. Every newly licensed taxicab driver shall have attended an approved hospitality program prior to receiving a driver's permit.

B. Every previously licensed taxicab driver shall attend an approved hospitality training course or refresher course prior to applying for or renewal of a driver's permit each year. (Ord. BL2016-329 §§ 33—35, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.170 Display of permit.

Every driver to whom a permit is issued under this article shall have affixed to the interior of the vehicle for hire, in full view of the passengers at all times, the permit issued by the transportation and licensing commission. (Ord. BL2017-727 § 1, 2017; Ord. BL2000-325 § 1 (part), 2000)

6.72.175 Company affiliation.

Every driver granted a permit under this article shall inform the commission staff in writing of a change in company affiliation prior to the change. (Ord. BL2016-329 § 36, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.180 Suspension and revocation.

(A) The metropolitan transportation licensing commission or its director is authorized to place on probation, suspend or revoke any drivers' permit issued under this article upon a driver's failure or refusal to comply with the provisions of this chapter or the taxicab rules and regulations. Upon being placed on probation, suspension or revocation, appeals can be made to the metropolitan transportation licensing commission by filing a written request within thirty days of the action being appealed.

(B) If the driver commits an act in violation of the Criminal Code and the metropolitan transportation licensing commission director determines that driver poses a threat to public safety, the metropolitan transportation licensing commission director may enact an emergency suspension of the driver's permit to remain in effect until the driver has the opportunity to be heard by the metropolitan transportation licensing commission at the next available commission meeting, but in no circumstance later than sixty days from the date of the emergency suspension.

(C) A driver whose permit is revoked by the metropolitan transportation licensing commission or the metropolitan transportation licensing commission director may not reapply for ninety days from the date of revocation and will be treated as a new applicant. (Ord. BL2016-329 §§ 37—39, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.185 Revocation of Tennessee driver's license.

A taxicab driver permit issued under this chapter shall be coterminous with the permittee's valid driver's license issued by one of the fifty states in the United States of America. Any time that a permittee's driver's license is suspended, revoked, or cancelled, the permittee shall immediately self-report said action to the metropolitan transportation licensing commission and their taxicab drivers permit shall likewise be immediately suspended, revoked, or cancelled. The taxicab drivers permit shall immediately be surrendered to the metropolitan transportation licensing commission until such time as their driver's license is reinstated. (Ord. BL2016-329 § 40, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.190 Compliance with provisions.

Every driver granted a permit under this article shall comply with all local, state and federal laws and regulations. Failure to do so shall constitute cause for the revocation or suspension of his or her permit. (Ord. BL2000-325 § 1 (part), 2000)

Article III. Equipment and Operation

6.72.200 Vehicle to display company name, color scheme insignia and numbering—Restrictions.

A. Each taxicab shall bear on the outside of each front door, in painted letters not less than three inches in height, the name of the company and may, in addition, bear an identifying design which has been approved by the metropolitan transportation licensing commission.

B. No vehicle covered by the terms of this chapter shall be licensed which bears a color scheme, identifying design, monogram or insignia which, in the opinion of the metropolitan transportation licensing commission, conflicts with or imitates any color scheme, identifying design, monogram or insignia used by a vehicle or company in such manner as to be misleading or such that it tends to deceive or defraud the public.

C. If, after a certificate of public convenience and necessity has been issued for a taxicab under this chapter, the color scheme, identifying design, monogram or insignia thereof is changed so as to be, in the opinion of the metropolitan transportation licensing commission, in conflict with or imitate any color scheme, identifying design, monogram or insignia used by any

other person, owner or operator, in such manner as to be misleading or such that it tends to deceive the public, the certificate of or certificate covering such taxicab shall be suspended or revoked.

D. Each taxicab shall bear on the rear and on each side, in painted numbers not less than three inches in height, an identifying serial number assigned by the metropolitan transportation licensing commission. (Ord. BL2000-325 § 1 (part), 2000)

6.72.210 Liability insurance agreement.

A. All taxicab companies shall be required to maintain a copy of a commercial automobile liability insurance agreement for each taxicab operated under their certificate in an amount set by the commission and must be able to provide a copy to the commission staff immediately upon request.

B. Effect of no insurance. The failure of a holder to maintain continuous coverage of insurance as required by this section or to ensure that coverage is maintained shall be sufficient cause for revocation of the certificate of public convenience and necessity. The holder of the certificate of public convenience and necessity shall quarterly certify to the commission director that they maintain current endorsements as to each permitted driver and taxicab pertaining to said certificate holder's certificate or that they ensure that such endorsements are maintained, and shall promptly make all such documentation available to the commission director upon request.

C. These agreements shall place the vehicles operated under their certificate in the taxicab company's complete possession and control during all periods during which the vehicles is operated for hire, is available for hire, or is operated in furtherance of the certificate holder's business. The certificate holder shall assume complete liability for each and every vehicle operated under its certificate during all periods during which the vehicle is operated for hire, is available for hire, or is operated in furtherance of the certificate holder's business. (Ord. BL2016-329 §§ 41, 42, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.220 Duty to render service—Business requirements.

A. All persons engaged in the taxicab business within the area of the metropolitan government, under the provisions of this chapter shall render service in accordance with the chapter to any member of the public desiring to use taxicabs.

B. Holders of certificates of public convenience and necessity shall maintain a fixed, central place of business within the metropolitan government area. Such businesses shall also provide service twenty-four hours a day for the purpose of receiving calls and dispatching cabs.

C. Holders of certificates of public convenience and necessity shall answer all calls for services within the area of the metropolitan government within a reasonable time. If service cannot be rendered within a reasonable time, the holders of certificates shall then notify the prospective passengers of how long it will be before such call can be answered and give the reason therefore.

D. Any holder of certificates of public convenience and necessity who refuses to accept a call anywhere within the area of the metropolitan government at any time when such holder has available cabs, or who shall fail or refuse to give overall service, shall be deemed in violation of this chapter, and the certificate granted to such holder may be suspended or revoked at the discretion of the metropolitan transportation licensing commission. (Ord. BL2009-417 § 1, 2009; Ord. BL2000-325 § 1 (part), 2000)

6.72.230 Daily manifests.

A. Every taxicab driver shall maintain a written or electronic daily manifest upon which is recorded all trips made each day, showing the time and place of origin and destination of each trip and the amount of fare and number of passengers. All such completed manifests shall be returned to the cab owner by the driver at the conclusion of his tour of duty each day. The forms for each manifest shall be furnished to the driver by the cab owner and shall be of a character approved by the metropolitan transportation licensing commission staff.

B. Every cab owner shall retain and preserve all drivers' manifests for the previous twelve months in a safe place, and such manifests shall be available to the metropolitan transportation licensing commission. (Ord. BL2016-329 § 43, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.240 Inspection and maintenance of vehicles—Compliance required.

A. It shall be unlawful to drive or to cause to be driven any taxicab that does not have a current inspection compliance decal approved by the metropolitan transportation licensing commission director and issued by the certificate holder. Certificate holders shall cause the decals of any permitted vehicles which may be removed from service to be removed and returned to the metropolitan transportation licensing commission staff. Circumstances under which e-decals may be used or under which the decals may be removable rather than

permanently affixed, if any, may be determined by the metropolitan transportation licensing commission by rule.

B. All vehicles shall be maintained in a safe and sanitary condition at all times and shall always be maintained in first class mechanical condition.

C. All safety, noise, and antipollution requirements specified by the United States Government and the state shall be complied with at all times.

D. The brakes shall always be kept in safe and proper working order.

E. All vehicles shall be air-conditioned and equipped with interior and exterior rearview mirrors, windshield washers, and two-speed windshield wipers, proper headlights and tail lights that shall be in operation from one-half hour after sunset to one-half hour before sunrise when the vehicle is in operation.

F. Every vehicle operating under this chapter shall annually undergo a detailed mechanical inspection conducted by an approved mechanic to determine if the vehicle conforms to the standards set out by the metropolitan transportation licensing commission. A safety certificate form, when completed by an approved mechanic, shall be provided to the commission director within thirty days of the inspection.

G. The certificate holder shall be responsible for ensuring that the mechanical inspection includes, but is not limited to, the following:

1. Vehicle identification number;
2. Headlights;
3. Tail lights;
4. Brake lights;
5. Turn signal lights:
6. License plate lights;
7. Horn;
8. Two-speed windshield wipers;
9. Interior and exterior rear vision mirrors;
10. Air conditioner;
11. Tires;
12. Muffler and tail pipe;
13. Condition of the body, fenders, paint, and interior;
14. Compliance with current state and local vehicle registration requirements, as applicable, as more specifically set forth in the rules and regulations adopted by the metropolitan transportation licensing commission;
15. Mileage;
16. Steering;
17. Brakes, including foot and emergency;
18. Seat belts;
19. Windshield;
20. Rear windows and other glass;
21. Doors; and
22. Speedometer.

H. In addition to the review of submitted annual reports, all taxicabs permitted under this chapter are subject to random inspection and testing by the metropolitan transportation licensing commission staff pursuant to rules and regulations adopted by the metropolitan transportation licensing commission to assure that they are in compliance with the terms of this chapter and the rules and regulations of the metropolitan transportation licensing commission.

I. If, as a result of the inspection or test, any taxicab is found not in compliance, the holder shall be notified of the defects observed, and he shall correct same to the satisfaction of the metropolitan transportation licensing commission staff, in compliance with the rules and regulations adopted by the metropolitan transportation licensing commission. Any taxicab that is the subject of this notification shall not be operated on any street of the city until it has been re-inspected and determined to be in compliance with the requirements of inspection. The metropolitan transportation licensing commission director and any employee to whom he may designate the duty of inspection of taxicab shall be given ready access to the taxicab. (Ord. BL2016-329 § 44, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.245 Vehicle age limit.

A. No vehicle operated as a taxicab shall be more than fifteen years old. By the end of December 31st of each year, automobiles at the end of their fifteenth year must be taken out of service or replaced. The commission shall establish, by its rules, a procedure by which an affected vehicle owner may seek a waiver under this rule. The commission may also, by rule, provide for a waiver of this rule for classic automobiles and provide for a definition for classic automobiles.

B. The commission may by rule establish additional criteria under which vehicles enter and are removed from service. (Ord. BL2019-1656 § 1, 2019; Ord. BL2016-329 §§ 45, 46, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.250 Rate schedule.

A. No owner or driver of a taxicab shall charge a greater sum for the use of a taxicab than the rates set below:

1. The metropolitan transportation licensing commission may establish by rule maximum and minimum rates, authorize flat fares and minimum meter actuation rates.

2. The metropolitan transportation licensing commission may establish by rule an additional charge for waiting time. Waiting time shall be charged only for

stops or delays caused or requested by the passenger(s) and shall not apply to stops or delays due to any other cause.

B. The metropolitan transportation licensing commission shall furnish rate cards to the holders of certificates of public convenience and necessity. The rate cards shall be displayed conspicuously in the rear compartment or interior of the vehicle in such a position that it can be read easily by the occupants of the vehicle. Failure to display the rate card in a conspicuous manner shall be grounds for revocation or suspension of the permit for operation of the taxicab in which the rate card was not properly displayed.

C. The metropolitan transportation licensing commission may authorize a surcharge for special events in accordance with commission rules.

D. The metropolitan transportation licensing commission may authorize a temporary fuel surcharge in accordance with commission rules. Any temporary fuel surcharge imposed by the transportation licensing commission pursuant to this subsection shall not exceed six months in duration and shall not exceed five percent of the taxicab rates charged.

E. The metropolitan transportation licensing commission may establish by rule a taxicab interior cleaning and restoration fee. (Ord. BL2016-329 §§ 47—51, 2016; Amdt. 1 to Ord. BL2006-1063 § 1, 2006; Ord. BL2006-1063 § 1, 2006; Ord. BL2000-325 § 1 (part), 2000)

6.72.260 Rate changes—Display in vehicle.

Each taxicab company shall be required to file with the metropolitan transportation licensing commission a list of their rates thirty days prior to any change and there shall not be more than one rate charged by any one taxicab, with the exception of a senior citizen or handicapped discount or as provided in Section 6.72.450 of this Code. The rate charged by each taxicab shall be the same as that on file with the metropolitan transportation licensing commission and shall be posted conspicuously within the taxicab. (Ord. BL2000-325 § 1 (part), 2000)

6.72.265 Taximeters.

A. All taxicabs operated under the authority of this chapter shall be equipped with taximeters or smart taximeters fastened in front of the passengers, visible to them at all times day and night. After sundown, the face of the taximeter or smart taximeter shall be illuminated. Taximeters or smart taximeters shall be operated mechanically by a device of standard design and construction, operated either from the transmission or from one of the front wheels by a flexible and permanently attached driving mechanism. Smart taximeters shall be operated by a system of hardware and software that integrates a taximeter and other components together to perform functions required by this chapter. Each taximeter or smart taximeter shall denote when the vehicle is employed and when it is not employed. It shall be the duty of the driver to activate such taximeter or smart taximeter into a recording position at the beginning of each trip and to deactivate such taximeter or smart taximeter into a non-recording position at the termination of each trip.

B. Taximeters or smart taximeters shall be subject to inspection by the taxicab inspectors. Any inspector is authorized, either on complaint of any person or without such complaint, to inspect any meter, and upon discovery of any inaccuracy, to notify the person operating such taxicab to cease operation. Such taxicab shall be kept off the highways until the taximeter or smart taximeter is repaired and in required working condition to the satisfaction of the inspector.

C. Taximeters shall be inspected, tested and sealed at least once every year by a taximeter company approved by the metropolitan transportation licensing commission. The commission shall establish rules setting forth the criteria by which taximeter companies may apply for approval. Smart taximeters shall be inspected at least once every year by the executive director of the commission or his/her designee. (Ord. BL2025-812 § 3, 2025; Ord. BL2000-325 § 1 (part), 2000)

6.72.270 Payment of fare and receipts.

A. Payment of fare. The driver of any taxicab shall provide the passenger with the option of paying the fare by cash, debit card or major credit card. For purposes of this section, the term "major credit card" means a Visa, MasterCard, American Express, Discover and Diner's Club card.

B. The driver of any taxicab shall, upon request by the passenger, provide a receipt for the amount charged, either by a mechanically printed receipt or by a specifically prepared receipt, on which shall be the name of the taxicab company, taxicab number and driver name, the amount of meter reading or charges, the points of trip origin and final destination, and the date of transaction. (Ord. BL2016-329 §§ 52, 53, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.280 Operating records and reports.

A. Every holder of a certificate of public convenience and necessity shall keep accurate records of receipts of operation, operating and other expenses, expenditures and such other operating information as may be required by the metropolitan transportation licensing commission. Every such holder shall, for a period of twelve

months, or such period as may otherwise be set by the commission, maintain the records containing such information and other information required by this chapter at a place readily accessible for examination by the metropolitan transportation licensing commission.

B. Every holder of a certificate of public convenience and necessity shall keep accurate daily records of the drivers and vehicles on duty, including the times in and out of service. The forms utilized shall include information required by the metropolitan transportation licensing commission. (Ord. BL2000-325 § 1 (part), 2000)

6.72.290 Accidents.

A. All accidents arising from or in connection with the operation of taxicabs which result in death or injury to any person, EMT services, tow services or in damage to any vehicle, or to any property in an amount exceeding the sum of two thousand dollars shall be reported to the metropolitan transportation licensing commission on a form to be furnished by the commission within seventy-two hours from either the time of the occurrence necessitating EMT or tow services or upon obtaining an estimate of the property damage. Any taxicab damaged in an accident may not be returned to service until an approved safety inspection is completed by the certificate holder.

B. A taxicab driver operating a taxicab at the time of an accident involving bodily injury or death is required to report for a drug screen, within twenty-four hours from the time of occurrence, at a testing site designated by the metropolitan transportation licensing commission. Failure to report for such a screen may result in revocation of the taxicab driver's permit.

C. A taxicab damaged in an accident, but still operable without placing the driver or passengers at risk, must be repaired within two weeks of the accident or removed from operation until repaired. (Ord. BL2016-329 § 54, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.300 Taxicab stands—Prohibited vehicles.

Private vehicles, taxicabs not in service or other vehicles for hire shall not at any time occupy the space upon the streets that have been established as taxicab stands. (Ord. BL2000-325 § 1 (part), 2000)

6.72.310 Taxicab stands—Established—Regulations.

A. The metropolitan transportation licensing commission is authorized and empowered to and shall establish taxicab stands upon the streets of the metropolitan government in such places as, in its discretion, it deems proper. The commission is further authorized to eliminate any taxicab stands now in use or later established. The traffic and parking commission shall make an investigation of the traffic conditions at such places and shall thereafter file their written recommendations with the metropolitan transportation licensing commission.

B. Public or Open Stands. Any taxicab stand established in accordance with subsection A of this section shall be a public or open stand available to all licensed taxicabs. A passenger has the right to select a cab of his choice or preference at any such stand.

C. Prohibited Conduct. It is unlawful for any person to obstruct or interfere with the free use and enjoyment of any public or open taxicab stand by any licensed taxicab. (Ord. BL2000-325 § 1 (part), 2000)

6.72.320 Passengers—Maximum number.

No driver or certificate holder shall permit more persons to be carried in a taxicab as passengers than the manufacturer's rated seating capacity of the taxicab. (Ord. BL2000-325 § 1 (part), 2000)

6.72.330 Passengers—Additional passengers permitted when—Charges.

A. No taxicab driver shall permit any other person, except as otherwise provided in this chapter, to occupy or ride in such taxicab unless the person first employing the taxicab shall consent to the acceptance of additional passengers.

B. A charge for additional passengers, not to exceed one dollar per passenger, when such passengers are accompanying the original passenger and proceeding to the same destination, may be collected. If an additional passenger rides beyond the original passenger's destination, he or she shall be charged only for the additional distance so traveled. (Ord. BL2000-325 § 1 (part), 2000)

6.72.340 Passengers—Receiving and discharging by drivers.

Drivers of taxicabs shall not receive or discharge passengers upon the roadway, but shall pull to the extreme right-hand side of the road or to the sidewalk and there receive or discharge passengers, except upon one-way streets where passengers may be discharged at either side of the roadway in the absence of a sidewalk. As an exception, when access to curb space is blocked by parked vehicles, drivers may pull to the extreme right-hand lane, and stop to expeditiously receive or discharge passengers from the right side of the vehicle. Nothing in this section shall be construed to permit the parking of a vehicle at any place where parking is otherwise restricted or prohibited. (Ord. BL2006-1062 § 1, 2006; Ord. BL2000-325 § 1 (part), 2000)

6.72.350 Passengers—Refusal to pay legal fare.

It is unlawful for any person to refuse to pay the legal fare for any of the services mentioned in this chapter after having hired the same, and it is unlawful for any person to hire any such vehicle with intent to defraud the person hired of the value of such service. (Ord. BL2025-812 § 4, 2025; Ord. BL2000-325 § 1 (part), 2000)

6.72.360 Refusal to carry orderly passengers.

No taxicab driver may refuse or neglect to convey any orderly person or persons, upon request, unless currently employed or unless the taxicab driver has reason to believe that the person is engaged in a violation of federal, state or local laws or has reasonable basis to fear injury to him or herself. (Ord. BL2000-325 § 1 (part), 2000)

6.72.365 Disposition of disorderly passengers.

Drivers shall act in a reasonable manner in dealing with disorderly passengers. (Ord. BL2000-325 § 1 (part), 2000)

6.72.370 Soliciting passengers.

No taxicab driver shall solicit passengers for a taxicab, except when sitting in the driver's compartment of such taxicab or while standing immediately adjacent to the curb. The driver of any taxicab shall remain in the driver's compartment or immediately adjacent to his vehicle at all times when such vehicle is upon the public streets; except that, when reasonably necessary, a driver may be absent from his taxicab for not more than ten consecutive minutes; provided further, that nothing herein contained shall be held to prohibit any driver from alighting to the street or sidewalk for the purpose of assisting passengers into or out of such vehicle. (Ord. BL2000-325 § 1 (part), 2000)

6.72.390 Soliciting business.

No driver of a taxicab shall offer any compensation of whatever form to any person or entity in exchange for the direction or recommendation of passengers to that driver's taxicab. (Ord. BL2000-325 § 1 (part), 2000)

6.72.400 Prohibited manner of soliciting.

No taxicab driver shall solicit patronage in a loud or annoying tone of voice or in any manner annoy any person or obstruct the movement of any persons, or follow any person for the purpose of soliciting patronage. (Ord. BL2000-325 § 1 (part), 2000)

6.72.405 Map requirement.

All taxicabs operated under the authority of this chapter shall carry or keep electronically a current map of Metropolitan Nashville and Davidson County in a place immediately accessible to the driver. (Ord. BL2025-812 § 5, 2025; Ord. BL2000-325 § 1 (part), 2000)

6.72.410 Toplight required.

All taxicabs operated under the authority of this chapter shall be equipped with a toplight of standard design and construction on the roof of the vehicle, visible to potential passengers at all times of day and night. Each toplight shall be illuminated when a taxicab is available for hire, and turned off when a taxicab is in service. It shall be the duty of the driver to activate such toplight at the beginning of each trip and to deactivate such toplight at the termination of each trip. (Ord. BL2000-325 § 1 (part), 2000)

6.72.415 Driver appearance.

A. Every taxicab driver, while on duty, shall keep a clean and well-groomed appearance, and shall be dressed in compliance with those rules adopted by the commission.

B. [Reserved.] (Ord. BL2016-329 § 55, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.420 Advertising on vehicles.

Subject to the rules and regulations of the metropolitan transportation licensing commission, it shall be lawful for any person owning or operating a taxicab or other motor vehicle for hire to permit advertising matter to be affixed to or installed in or on such taxicabs or motor vehicles for hire. Bumper stickers are prohibited. (Ord. BL2000-325 § 1 (part), 2000)

6.72.425 Vehicle safety devices.

All taxicabs must have a global positioning system (GPS) installed or immediately accessible to the driver electronically. Subject to the rules and regulations of the metropolitan transportation licensing commission, it shall be lawful for any person owning or operating a taxicab or motor vehicle for hire to permit safety devices, including shields, alarms, cameras, and cash boxes to be affixed to or installed in or on such taxicabs or motor vehicles for hire. (Ord. BL2025-812 § 6, 2025; Ord. BL2016-329 § 56, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.430 Prohibited acts by driver.

A. No taxicab driver shall engage in illegally selling intoxicating liquors or controlled substances, or soliciting business from any house of ill repute or use his or her vehicle for any purpose other than the transporting of paying passengers.

B. No taxicab driver shall engage in abusive language or conduct, including, but not limited to, cursing, verbal insults or derogatory comments or gestures in the presence of passengers.

C. While on duty, no taxicab driver shall be under the influence or engaged in the consumption of any intoxicant, including, but not limited, to alcoholic beverages.

D. No taxicab driver shall work more than sixteen driving hours in the aggregate during any twenty-four hour period, and such driver shall not begin to drive unless he or she has had at least eight consecutive hours of rest immediately prior to doing so. The certificate holder is responsible, in conjunction with the driver, to ensure compliance with this requirement.

E. No taxicab driver shall drive any other than the shortest and most direct route in transporting a passenger from the point of pick-up to the point of destination, unless otherwise requested by the passenger.

F. No driver shall fail to comply with all state, local and federal laws. (Ord. BL2016-329 § 57, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.435 Taxicab passenger's bill of rights.

A. All taxicab passengers within the area of the metropolitan government shall have the following rights:

1. A professional driver who is licensed and knowledgeable about major routes, destinations, and attractions in Nashville and Davidson County;

2. A driver who knows and obeys all traffic laws and ordinances related to taxicabs;

3. A driver who is courteous while providing passenger assistance and a safe ride;

4. A quality taxicab that is mechanically free of problems and is clean both in the passenger areas as well as the trunk area;

5. Smoke- and incense-free air while in the taxicab;

6. A silent trip without the driver engaging in personal wireless telephone calls;

7. Air conditioning and heat upon request;

8. Direct the destination and the route to be traveled;

9. The right to refuse to tip; and

10. A receipt upon request.

B. Effective December 1, 2004, the information including in subsection A shall be posted in each taxicab in plain view of all passengers, and shall include the telephone number of the transportation licensing commission. (Amdt. 2 to Ord. BL2021-921 § 2, 2021; Amdt. 1 to Ord. BL2021-921 § 2, 2021; Ord. BL2021-921 § 2, 2021; Amdt. 1 with Ord. BL2004-351 § 1, 2004)

6.72.440 Taxicab driver's bill of rights.

Taxicab drivers have the right to:

A. Refuse or discharge any passenger for disorderly or verbally abusive behavior,

B. Refuse any passenger who is involved in any illegal activity,

C. Discharge any passenger who becomes dangerous and causes harm to others,

D. Refuse a fare which could lead the driver into a dangerous situation,

E. Disallow any smoking or drinking in the taxicab,

F. Collect the exact fee as determined from the taximeter or flat-rate flee plan,

G. Know the exact destination of the passenger before embarking on the trip. (Ord. BL2016-329 §§ 58, 59, 2016; Ord. BL2000-325 § 1 (part), 2000)

6.72.445 Inspectors to observe conduct—Reporting or citing violations.

The taxicab inspectors of the metropolitan government are authorized and shall observe and evaluate the conduct of holders of certificates of public convenience and necessity and drivers operating under this chapter. Upon discovering a violation of the provisions of this chapter, the inspector shall either report the same to the metropolitan transportation licensing commission or its director which shall order or take appropriate action, or issue a citation as authorized under [Section] 6.72.500. (Ord. BL2016-329 § 60, 2016)

6.72.450 Contract rates.

Nothing contained herein shall prevent a holder of a certificate of public convenience and necessity from making a contractual agreement with a company, agency, or organization to furnish transportation for employees, associates, clients, customers or members at a rate that is based on mileage, number of passengers, number of service hours, number of trips, number of passenger hours, weekly or monthly fees, or any other reasonable and calculable basis, irrespective of the mileage charges, minimum charges, and waiting charges contained in this chapter or the certificate holder's filed rates for ordinary radio-dispatch, taxicab stand, personal call or hailed service. Such a contractual agreement that provides for rates that differ from the rates ordinarily charged by the taxicab operator must be recorded upon a written document that is legally executed by all parties and kept on

file at the certificate holder's place of business subject to inspection at any reasonable time by the metropolitan transportation licensing commission. (Ord. BL2000-325 § 1 (part), 2000)

Article IV. Violations—Civil Penalty Schedules

6.72.500 Violation—Penalties.

A. All provisions of this chapter shall be governed by the penalties and procedures for general ordinance violations set forth in Section 1.01.030.

B. Notwithstanding any provision contained herein, the commission shall have the authority to enforce the provisions of this chapter. (Ord. BL2010-793 § 4, 2010; Ord. BL2000-325 § 1 (part), 2000)

Chapter 6.73

LOW SPEED VEHICLES

Sections:

6.73.010 Definitions.

Article I. Certificate of Public Convenience and Necessity

6.73.020 Required and term.
6.73.030 Findings—Issuance of certificate or additional permits.
6.73.040 Application—Information and fees required.
6.73.050 Issuance and denial—Fees.
6.73.060 Annual renewal.
6.73.070 Insurance required.
6.73.080 Request for additional permits.
6.73.090 Suspension and revocation.
6.73.100 Enforcement by police officers.

Article II. Driver Permit

6.73.110 Permit required—Violations and term.
6.73.120 Application—Information and fees required.
6.73.130 Criminal background investigation.
6.73.140 Application approval or disapproval.
6.73.150 Issuance—Contents.
6.73.160 New application after denial.
6.73.170 Expiration—Issuance and replacement fee.
6.73.175 Hospitality training program—Participation required.
6.73.180 Suspension, revocation, and appeal.
6.73.190 Revocation of a valid driver's license.
6.73.200 Conduct of drivers.
6.73.210 Driver appearance.
6.73.220 Alcohol in a LSV.
6.73.240 Return of passengers' property.
6.73.250 Passenger as controller.
6.73.260 Compliance with provisions.

Article III. Equipment and Operation

6.73.270 Vehicle permit required.
6.73.280 Ownership and control of vehicles.
6.73.290 Vehicle to display identification.
6.73.300 Vehicle requirements.
6.73.310 Vehicle to display company name, color scheme insignia and numbering—Restrictions.
6.73.320 Inspection and maintenance of vehicles—Compliance required.
6.73.330 Rate schedule and card for LSVs.
6.73.340 Contract rates.
6.73.350 Advertising on vehicles.
6.73.360 Equipment.
6.73.370 Duty to render service—Business requirements.
6.73.380 Operating area.
6.73.390 Records and reports.
6.73.400 Accidents.
6.73.410 Passengers—Receiving and discharging by drivers.
6.73.420 Passengers—Refusal to pay legal fare.
6.73.430 Refusal to carry orderly passengers.
6.73.440 Disposition of disorderly passengers.
6.73.450 Soliciting passengers.
6.73.460 Soliciting business.
6.73.470 Prohibited manner of soliciting.
6.73.480 Taxicab stands—Prohibited vehicles.
6.73.490 Inspectors—Reporting or citing violations.
6.73.500 LSV passenger's bill of rights.

Article IV. Violations—Civil Penalty Schedules

6.73.510 Violations—Penalties.

6.73.010 Definitions.

For purposes of this chapter:

"Certificate" means a certificate of public convenience and necessity, a license granted, upon application and approval, by the metropolitan transportation licensing commission for the sole purpose of authorizing the certificate holder to provide transportation through a low speed vehicle, and may hold one or more permits as defined under this section.

"Certificate holder" or "holder" means a person, company, corporation or association which has applied for, and been granted, a certificate of public necessity and convenience.

"MTLC" (unless otherwise described) means the metropolitan transportation licensing commission as established by the Metropolitan Code.

"MTLC director" means the commission director/executive secretary of the metropolitan transportation licensing commission, as employed by the metropolitan department of public works on behalf of the commission.

"Driver" means any individual who physically operates a low speed vehicle as a for-hire vehicle under this chapter. This person may share additional, company-related titles, such as owner, employee of the owner, holder or independent contractor.

"Driver permit" means a permit issued by the MTLC to drive and operate a low speed vehicle.

"For hire" means a transaction whereby any money, thing of value, charge tickets, surcharge, payment, pecuniary consideration or compensation, reward, donation, tip, or any other remuneration or profit is paid to, accepted by, or received by a driver, employee, agent, owner, or any other representative of a passenger vehicle for hire or a passenger vehicle for hire company in exchange for the temporary use by or for the transportation of a passenger, whether such is paid voluntarily or upon solicitation, demand, request, contract, agreement, or as a surcharge; or otherwise in conjunction with the purchase of parking wherein the transportation is part of the services provided.

"Low speed vehicle (LSV)" means any four-wheeled electric or gasoline-powered vehicle, excluding golf carts, whose top speed is greater than twenty miles per hour but not greater than twenty-five miles per hour, including neighborhood vehicles. Low speed vehicles must comply with the standards in 49 CFR 571.500. Vehicles meeting the definition of "golf carts" as defined in Tenn. Code Ann. 55-1-123 shall not be included in the definition of LSV's.

"Low speed vehicle (LSV) permit" means a permit issued by the MTLC for a LSV to carry passengers.

"Low speed vehicle (LSV) driver's permit" means a permit issued by the MTLC for a person to operate a LSV to carry passengers.

"Metro" means the Metropolitan Government of Nashville and Davidson County.

"Metropolitan area" means the area which comprises Nashville and Davidson County.

"MTLC staff" means the inspectors, director and other staff employed by the MTLC.

"Owner" means the person who holds the legal title of the LSV.

"Person" means any individual, partnership, corporation, association or public or private organization of any character.

"Permittee" means a holder of any permit issued under this chapter.

"Rate card" means a card issued by the MTLC for display in each LSV, which contains the rates of fare then in force.

"Solicit" means the distribution of flyers or other material, or an appeal by bell, horn, whistle, words, or gestures by a driver or his or her agent directed at individuals or groups for the purpose of attracting passengers for immediate hire.

"Taxicab" means a motor vehicle regularly engaged in the business of carrying passengers for hire, donation, gratuity or any other form of remuneration, having a seating capacity of less than nine persons and not operated on a fixed route.

"Taxicab stand" means a place alongside a street, or elsewhere, where the MTLC has authorized a holder of certificate of public convenience to park for picking up or discharging passengers.

"Traffic and parking commission" means the metropolitan traffic and parking commission as established by the Metropolitan Charter and Code of Laws. (Ord. BL2014-993 § 1, 2015)

Article I. Certificate of Public Convenience and Necessity

6.73.020 Required and term.

A. No LSV shall be used or operated on a for hire basis by any person in the territorial jurisdiction of the metropolitan government without an owner or operator having first obtained a certificate of public convenience and necessity. Each certificate shall be valid for one year and shall be subject to renewal pursuant to the provisions set forth in this article.

B. It shall be unlawful for any person to transport or offer to transport passengers in any LSV for hire which does not have affixed to the vehicle a valid permit issued through the MTLC.

C. Certificates shall not be transferred, sold or given from one owner to another including the sale of one LSV company in its entirety to another.

D. The MTLC shall track all certificates, and after the renewal period, if the certificate has not been renewed it shall be determined to be void. (Ord. BL2014-993 § 1, 2015)

6.73.030 Findings—Issuance of certificate or additional permits.

A. If the MTLC finds that further or additional LSV service in the metropolitan government area is required by the public convenience and necessity and that the applicant is fit, willing and able to provide such service and to conform to the provisions of this chapter and the rules promulgated by the MTLC, the MTLC may issue a certificate of public convenience and necessity, stating the name and address of the applicant, the number of vehicles authorized upon such certificate and the date of issuance.

B. In making the above findings, the MTLC shall, at a minimum, take into consideration the number of LSVs already in operation, whether existing service is adequate to meet the public need; the character, experience, financial condition and responsibility of the applicant, and such criteria as may be adopted by the MTLC in its rules. (Ord. BL2014-993 § 1, 2015)

6.73.040 Application—Information and fees required.

A. An application for a certificate of public convenience and necessity shall be filed with the MTLC director in a format prescribed by the MTLC. Forms will be provided by the MTLC director and payment of a nonrefundable fee will be charged. The amount of the application fee shall be established by the MTLC and approved by the metropolitan council by resolution, as shall all other fees provided for in this chapter. It shall include a certification under oath by the applicant that all required components of the application have been submitted and are complete, true and accurate, in a form established by the MTLC director. If a certificate is issued to the applicant, and this certification is found to have contained a misrepresentation, then that shall be deemed sufficient cause for revocation of the certificate.

B. An applicant will be ineligible for consideration if:

1. Any of the partners, officers, directors, or members are under twenty-one years of age and/or the passenger vehicle for hire business has no separate legal existence beyond a shareholder, owner, or partner who is under the age of eighteen years of age.

2. Any of the owners, partners, officers, directors, or members (collectively, "principals") has been convicted of, forfeited bond, pleaded guilty or nolo contendere to, or been released from incarceration for a felony or any crime involving a controlled substance, prostitution, assignation, obscenity, or any crime of a sexual nature in any jurisdiction within seven years immediately preceding the date of application; or has been convicted of, forfeited bond, or pleaded guilty or nolo contendere to multiple felonies. To verify this information, all principals of an applicant for a certificate shall be required to undergo a criminal background check as part of the determination of eligibility. Such background checks shall be conducted as provided for in the rules or regulations adopted by the MTLC. All costs of the criminal background check shall be borne by the applicant.

3. Any of the owners, partners, officers, directors, or members has violated any portion of this chapter or of Chapter 6.72 of the Metropolitan Code within five years immediately preceding the date of application.

4. Any portion of the application is incomplete or contains incorrect or untruthful information. (Ord. BL2014-993 § 1, 2015)

6.73.050 Issuance and denial—Fees.

A. If the MTLC determines that LSV services are required and the applicant is qualified, the MTLC may issue a certificate.

B. The MTLC shall adopt the criteria for determining the necessity for additional LSV certificates.

C. Any person whose application for a certificate is denied by the MTLC director may file a written appeal with the MTLC within thirty days of denial and request an appearance before the MTLC and appear in-person for consideration of the certificate application.

D. The certificate shall state the name, business address and telephone number of the applicant, the classification of service for which the certificate is issued, and the date of expiration. If the classification is for a special-purpose LSV, the certificate may also specify any limitations or restrictions that apply.

E. The MTLC will set fees to be charged for the issuance of each approved LSV permit associated with the certificate. (Ord. BL2014-993 § 1, 2015)

6.73.060 Annual renewal.

A. All certificates issued under the provisions of this chapter shall expire annually on the year following the date on which the certificate was issued. All certificates may be renewed by the MTLC director for each successive year. A renewal fee for each approved certificate and other licensing fees shall be charged at the annual renewal of the certificate.

B. All applicants for renewal must be current with all assessments and taxes due to the metropolitan government.

C. If a licensed LSV company or individual fails to renew prior to the end of the renewal period, the renewal applicant shall be treated as a new applicant. (Ord. BL2014-993 § 1, 2015)

6.73.070 Insurance required.

A. Before any certificate shall be issued under this chapter by the MTLC, or before the renewal of such certificate shall be granted, the applicant shall be required to file a certificate of insurance, complete with a schedule of covered LSVs, with the MTLC director evidencing insurance coverage as required in this section.

B. Minimum insurance requirements.

1. Comprehensive general (public) liability and property damage insurance, inclusive of contractual liability, in an amount of not less than one million dollars combined single limit written on an occurrence basis.

2. Comprehensive automobile liability in an amount of not less than one million dollars combined single limit written on an occurrence basis and uninsured/underinsured motorist insurance coverage in an amount not less than twenty-five thousand dollars (bodily injury per person)/ fifty thousand dollars (per accident)/fifteen thousand dollars (for property damage). All vehicles permitted under a single certificate shall be covered under one master policy held by that certificate holder. The certificate of insurance shall also list the vehicle identification number of each vehicle that is insured. Any change in vehicles covered under the policy must be reported immediately to the MTLC director.

3. The insurance company must be licensed to do business in the State of Tennessee or be an eligible surplus line insurer with the Tennessee Department of Commerce and Insurance and have a rating from AM Best or another equivalently reliable rating system that meets the requirements of the rules or regulations adopted by the MTLC. Eligible surplus line insurers may be required to have a higher rating than a company licensed to do business in the State of Tennessee. The insurance policy shall name the Metropolitan Government of Nashville and Davidson County, its officials, officers, employees, and volunteers as additional insureds.

C. The operation of any LSV within the metropolitan area without having in force the public liability insurance policy as outlined in this section is hereby declared to be in violation of this article, subjecting the owner and/or certificate holder to all applicable penalties provided in this article and this chapter.

D. Each applicant for a LSV license shall maintain workers' compensation insurance to the extent required by Tennessee law.

E. Any insurance policy required by this section must be in a form satisfactory to the MTLC and must provide that the policy will not be cancelled and the amount of coverage will not be changed unless sixty days' prior written notice is given to the MTLC.

F. The failure of a certificate holder to maintain continuous coverage of insurance as required by this section shall be deemed sufficient cause for revocation of the certificate. (Ord. BL2014-993 § 1, 2015)

6.73.080 Request for additional permits.

An application for additional LSV permits must be filed with the MTLC or the MTLC director. If approved, the established permit fee will be applied. (Ord. BL2014-993 § 1, 2015)

6.73.090 Suspension and revocation.

A. A certificate issued under the provisions of this chapter may be revoked, suspended, placed on probation, otherwise restricted, or not renewed by the MTLC if the holder thereof has:

1. Violated any of the provisions of this chapter or failed to comply with any rule or regulation established by the MTLC;

2. Violated any provision of this Code or other ordinances of the metropolitan government or laws of the United States or the State of Tennessee, the violation of which reflects unfavorably on the fitness of the holder to offer transportation services;

3. Failed to pay assessments or taxes due to the metropolitan government; or

4. Made a misrepresentation or false statement when obtaining a certificate or additional permits, or transferring a certificate.

B. Prior to any action to revoke, suspend, place on probation, otherwise restrict, or not renew a certificate, the holder shall be given notice to the address listed on their certificate of the proposed action to be taken and shall have an opportunity to be heard by the MTLC.

C. If the holder commits an act in violation of the Criminal Code and the MTLC director determines that holder poses a threat to the public safety, the MTLC director may enact an emergency suspension of the holder's certificate to remain in effect until the holder has the opportunity to be heard by the MTLC at the next available meeting, but in no circumstance later than sixty days from the date of the emergency suspension. (Ord. BL2014-993 § 1, 2015)

6.73.100 Enforcement by police officers.

Officers of the department of metropolitan police shall have the authority to enforce this chapter. A police officer, upon observing a violation of this chapter, of any regulation or rule established by the MTLC or the MTLC director pursuant to this chapter, shall take necessary enforcement action to insure effective regulation of LSVs. (Ord. BL2014-993 § 1, 2015)

Article II. Driver Permit

6.73.110 Permit required—Violations and term.

A. No person shall drive or otherwise operate a LSV engaged in the transportation of passengers unless he or she has a driver's permit. To qualify for a permit, an applicant must comply with all of the requirements and stipulations of this chapter, state and federal law, and any rules and regulations adopted by the MTLC.

B. A person commits an offense if he or she operates a LSV in the metropolitan area without a driver's permit issued by the MTLC.

C. A business commits an offense if it employs or otherwise allows a person to operate a LSV owned, controlled, or operated by the permittee unless the person has a driver's permit issued by the MTLC.

D. Each permit shall be valid for one year and shall be subject to renewal pursuant to the provisions set forth in this article. (Ord. BL2014-993 § 1, 2015)

6.73.120 Application—Information and fees required.

A. An application for a passenger vehicle for hire driver's permit shall be filed with the MTLC and shall comply with regulations set forth by the MTLC or the MTLC director.

B. Such application shall be certified under oath and shall at a minimum contain the following information:

1. The name, residential address, telephone number and date of birth of the applicant. No applicant under twenty-one years of age will be accepted.

2. The type(s) of vehicle(s) which the applicant will drive under the certificate.

3. Any other request for information the MTLC Director considers necessary or relevant.

C. The applicant shall provide copies of the following documents in order to submit his application:

1. A valid Tennessee driver license that complies with all applicable requirements of state law as further specified in rules to be adopted by the MTLC.

2. A Social Security card or birth certificate.

3. If a resident alien, a current work permit or other valid United States Immigration and Customs Enforcement document.

4. On forms provided by the MTLC Director, the applicant will provide a statement under penalty of perjury of their physical and mental fitness to act as for-hire driver. Such other information as may be reasonably required by regulation promulgated by the MTLC pursuant to this chapter.

5. Certification that the driver has completed the certificate holder's mandatory driver training program approved by the MTLC director.

D. Each application shall be accompanied by an official driver record issued by the Tennessee Department of Safety, no more than thirty days previous to the date of application. All applicants are required to meet the following standards:

1. No convictions in the last five years for any of the following offenses involving bodily injury or death and no convictions in the last three years for any of the following offenses not involving injury or death:

a. Hit and run;

b. Driving under the influence of an alcoholic beverage or drug;

c. Reckless driving.

2. For an initial permit, no more than four moving violations within the last three years and no more than two moving violations in the last year.

3. For a renewal permit, no more than four moving violations within the last three years and no more than two moving violations in the last year. (Ord. BL2014-993 § 1, 2015)

6.73.130 Criminal background investigation.

A. Upon receiving an application for a driver's permit from an applicant, the applicant must undergo an identification and background check as required by state law as more specifically provided by rules or regulations adopted by the MTLC. Upon receipt of the background check report, the MTLC Director shall determine whether the applicant's background check disqualifies him or her from eligibility for a driver's permit.

B. Additionally, certificate holder shall check the National Sex Offender Database to verify whether the applicant is listed on the database, and shall certify under oath to the MTLC that it has conducted this check and verified that the applicant does not appear on the database. Any applicant listed on the database shall be disqualified for eligibility for a driver's permit.

C. Any applicant shall, in addition to any disqualifications listed elsewhere in this chapter, be disqualified if the applicant:

1. Has been convicted, pleaded guilty, nolo contendere, placed on judicial diversion pursuant to Tenn. Code Ann. Sec. 40-35-313, or been released from incarceration, probation or parole within a period of seven years prior to the date of application for violation of any of the following criminal offenses under the laws of Tennessee, any other state, or the United States of America:

- Homicide,
- Rape,
- Aggravated assault,
- Kidnapping,
- Robbery,

- Burglary,
- Domestic assault or domestic violence,
- Child sexual abuse,
- Any sex-related offense,
- Leaving the scene of an accident,
- Criminal solicitation, or criminal attempt to commit any of above,
- Perjury or false swearing in making any statement under oath in connection with the application for a driver's permit, or
- The felony possession, sale or distribution of narcotic drugs or controlled substances.

2. If, at the time of application, the applicant is charged with any offenses in 1. above, consideration of the application shall be deferred until entry of a plea, conviction, acquittal, dismissal, or other final disposition of the charges.

3. Has been convicted for a period of two years prior to the date of application of the violation of two or more sections of this Code or other ordinances governing the operation of vehicles for hire.

4. Has failed to disclose any criminal conviction, except traffic citations, on the application for a permit. (Ord. BL2014-993 § 1, 2015)

6.73.140 Application approval or disapproval.

Upon disapproval of a driver application by the MTLC director, applicants may file an appeal with the MTLC within thirty days of denial and request an appearance before the MTLC. The appeal shall be heard by the MTLC at the next available commission meeting with the appellant appearing in-person for consideration of the application. (Ord. BL2014-993 § 1, 2015)

6.73.150 Issuance—Contents.

Upon approval of an application for a passenger vehicle for hire driver's permit, the certificate holder shall certify under oath to the MTLC director that the application is complete and accurate prior to issuing a permit to the applicant, in a form approved by the MTLC director. (Ord. BL2014-993 § 1, 2015)

6.73.160 New application after denial.

Upon denial of an application for a driver's permit, no new application shall be considered for a period of three months. (Ord. BL2014-993 § 1, 2015)

6.73.170 Expiration—Issuance and replacement fee.

A. Each passenger vehicle for hire driver's permit shall be issued for a period of one year.

B. A permit may be issued to qualified applicants for driver permits upon the payment of an amount to be established by the MTLC to cover the costs of investigation and of a random sampling of the permit applications by the MTLC director. A fee in an amount to be established by the MTLC shall be charged for all replacement driver permits. Every driver shall at all times conspicuously display a permit on the clothing of the driver's upper body. A driver shall allow a customer, MTLC staff or a police officer to examine the permit upon request. (Ord. BL2014-993 § 1, 2015)

6.73.175 Hospitality training program—Participation required.

A. Beginning July 1, 2019, every newly licensed LSV driver shall have attended an approved hospitality program prior to receiving a driver's permit.

B. Beginning July 1, 2019, every previously licensed LSV driver shall attend an approved hospitality training course or refresher course prior to applying for or renewal of a driver's permit each year. This course shall include updated information on any new MTLC regulations and safety requirements. (Ord. BL2019-1490 § 1, 2019)

6.73.180 Suspension, revocation, and appeal.

A. The MTLC director is authorized to suspend, revoke, otherwise restrict, or not renew any driver's permit issued under this article for failing or refusing to comply with the provisions of this chapter or the MTLC rules and regulations. Upon suspension, revocation, or other restriction of any driver's permit, appeals can be made to the MTLC by filing a written request within thirty days of the action being appealed.

B. If the driver commits an act in violation of the Criminal Code and the MTLC director determines that driver poses a threat to public safety, the MTLC director may enact an emergency suspension of the driver's permit to remain in effect until the driver has the opportunity to be heard by the MTLC at the next available commission meeting, but in no circumstance later than sixty days from the date of the emergency suspension.

C. A driver whose permit is revoked by the MTLC or MTLC director may not reapply for ninety days from the date of revocation and will be treated as a new applicant. (Ord. BL2014-993 § 1, 2015)

6.73.190 Revocation of a valid driver's license.

A LSV driver permit issued under this chapter shall be coterminous with the permittee's valid driver's license issued by one of the fifty states in the United States of America. Any time that a permittee's driver's license is

suspended, revoked, or cancelled, the permittee shall immediately self-report said action to the MTLC and their LSV driver's permit shall likewise be immediately suspended, revoked, or cancelled. The LSV driver's permit shall immediately be surrendered to the MTLC until such time as their driver's license is reinstated. (Ord. BL2014-993 § 1, 2015)

6.73.200 Conduct of drivers.

A driver shall at all times:

1. Act in a reasonable, prudent, safe, and courteous manner;

2. Not permit a person not possessing a LSV driver's permit to operate the LSV or exercise control over the operation of a LSV;

3. Not permit more passengers to be carried in a LSV than the number of approved seatbelts installed in the LSV, and at no time shall the driver allow any passenger to ride in any area of the LSV not specifically designed or designated as a seat;

4. Not permit any passenger twelve years of age or younger to ride in a LSV unaccompanied by an adult;

5. Travel only roads with speed limits that do not exceed thirty-five miles per hour. This subsection 6.73.210.5. does not prohibit a low speed vehicle from crossing a road or street at an intersection where the road or street has a posted speed limit of more than thirty-five miles per hour.

6. Not operate a LSV in excess of twenty-five miles per hour;

7. Not operate a LSV while under the influence of intoxicating beverages or drugs;

8. Observe and obey all state and local traffic laws and regulations;

9. Not permit a passenger to stand or ride on any part of the LSV other than the designated seating area while the LSV is in motion and to advise the passengers that they must be seated except when loading or unloading;

10. Wear a seatbelt at all times the LSV is in operation.

11. Comply with any other requirement adopted by the MTLC by rule, and refrain from any other conduct prohibited by the MTLC by rule. (Ord. BL2014-993 § 1, 2015)

6.73.210 Driver appearance.

A. Every LSV driver, while on duty, shall keep a clean and well-groomed appearance, and shall be dressed in compliance with those rules adopted by the MTLC.

B. The MTLC shall have the authority to adopt rules specifically governing the type(s) of permitted and prohibited attire.

C. The MTLC shall have the authority to require drivers to visibly display a company identification and/or driver's permit issued by the MTLC while operating a LSV. (Ord. BL2014-993 § 1, 2015)

6.73.220 Alcohol in a LSV.

A. A certificate holder or driver violates this chapter if he or she provides an alcoholic beverage to a passenger for a fee or as part of the passenger transport service.

B. A certificate holder or LSV driver violates this chapter if he or she provides, stocks, or otherwise permits any alcoholic beverage in the LSV. (Ord. BL2014-993 § 1, 2015)

6.73.240 Return of passengers' property.

A driver of a LSV shall immediately attempt to return to a passenger any property left by the passenger in the LSV. If unable to locate the passenger, the driver shall turn the property into the certificate holder's company office at the end of the driver's shift or at the first available opportunity. In such cases, the certificate holder shall make a good faith effort to locate the passenger, and, if not successful, hold the property in storage at its location for at least thirty days, unless otherwise directed by the director. (Ord. BL2014-993 § 1, 2015)

6.73.250 Passenger as controller.

Drivers of LSVs shall not cause a passenger to wait without the passenger's consent or to pick up additional passengers without the consent of current passenger(s). (Ord. BL2014-993 § 1, 2015)

6.73.260 Compliance with provisions.

Every driver granted a permit under this article shall comply with all metropolitan government, state, and federal laws and regulations. Failure to do so may result in disciplinary actions including suspension and up to revocation of the LSV driver's permit. (Ord. BL2014-993 § 1, 2015)

Article III. Equipment and Operation

6.73.270 Vehicle permit required.

Each LSV must have a permit issued by the MTLC. The permit will identify each LSV by a unique number in accordance with rules and procedures established by the MTLC, and will be associated with the specific classification and by certificate holder. The applicant shall provide the MTLC director with a description of the size and weight of the LSV and the length of time the vehicle can operate before recharging the battery. Permits are not transferable to other LSVs or other certificate holders. (Ord. BL2014-993 § 1, 2015)

6.73.280 Ownership and control of vehicles.

All LSVs permitted under this chapter must be under the lawful control of a certificate holder demonstrated either by providing proof of ownership of the vehicle or a copy of a valid lease agreement. (Ord. BL2014-993 § 1, 2015)

6.73.290 Vehicle to display identification.

All LSVs operated under the authority of this chapter shall be equipped with identification as prescribed by the MTLC in rules and regulations. No person shall equip, mark, paint, display marking lights or windshield lights, or in any way cause any other vehicle to resemble a permitted LSV or create a public impression that any other vehicle is a permitted LSV approved by the MTLC. (Ord. BL2014-993 § 1, 2015)

6.73.300 Vehicle requirements.

A. The frame of the LSV must be constructed of iron, steel, or aluminum alloy extrusions.

B. Each LSV in operation must meet all of the safety standards in 49 CFR 571.500 applicable to LSVs. In addition, Each LSV shall meet the following minimum specifications:

1. A fully operational horn;

2. Driver's side and passenger side rearview mirrors;

3. Disc or drum brakes, which must be able to stop the LSV within fifteen feet at speeds up to twenty-five miles per hour;

4. A parking brake pedal/ handle system capable of keeping the LSV in a fixed position on both an incline and level terrain;

5. Turn signal indicator, headlight switch, and horn button;

6. Communication equipment while providing service, provided that radio scanners are prohibited in LSVs;

7. Two headlights that have beam of at least three hundred feet;

8. Two front turn signals;

9. Two reflectorized rear turn signals;

10. Two reflectorized brake lights;

11. Seat belts sufficient for the driver and every passenger

12. Unobstructed four-way hazard lights visible from at least five hundred feet;

13. Rubber on all wheels

14. Clean and maintained in a good state of repair. All LSVs shall be maintained by the certificate holder so as to be well painted and have a damage or deterioration free appearance, and in safe operational condition; and

15. All other requirements provided for in federal or state law or regulations, provisions of this Code, and rules adopted by the MTLC.

C. Each LSV shall display a rate card, permit decal, and a sign limiting the passenger capacity to seven passengers. (Ord. BL2014-993 § 1, 2015)

6.73.310 Vehicle to display company name, color scheme insignia and numbering—Restrictions.

A. Each LSV shall bear on the rear of the vehicle, above the taillights, in letters not less than two inches in height, the name of the company, phone number of the company, and may, in addition, bear an identifying design which has been approved by the MTLC.

B. No LSV covered by the terms of this chapter shall be licensed which bears a color scheme, identifying design, monogram or insignia which, in the opinion of the MTLC, conflicts with or imitates any color scheme, identifying design, monogram or insignia used by another LSV company in such manner as to be misleading or such that it tends to deceive or defraud the public.

C. If, after a certificate of public convenience and necessity has been issued for a LSV under this chapter, the color scheme, identifying design, monogram or insignia thereof is changed so as to be, in the opinion of the MTLC, in conflict with or imitate any color scheme, identifying design, monogram or insignia used by any other person, owner or operator, in such manner as to be misleading or such that it tends to deceive the public, the certificate of or certificate covering such LSV shall be suspended or revoked. (Ord. BL2014-993 § 1, 2015)

6.73.320 Inspection and maintenance of vehicles—Compliance required.

A. Prior to the use and operation of any LSV under the provisions of this chapter, such vehicle shall be thoroughly examined and inspected by the certificate holder and found to comply with such rules and regulations as may be prescribed by the MTLC. These rules and regulations shall be promulgated to provide safe transportation and shall specify such safety equipment and regulatory devices as the MTLC shall deem necessary. Every LSV operating under this chapter shall be periodically inspected at such intervals as shall be established by the MTLC to ensure the continued maintenance of safe operating conditions. A certificate holder, owner or driver shall make the LSV available for inspection at such place within the metropolitan area as the MTLC director or his designee may direct. If, upon inspection, the director or his designee determines that a LSV is not in compliance with this chapter or the LSV rules, the director or his designee shall, based upon the condition noted, order the LSV be removed from service or that the vehicle be brought into compliance within a reasonable period of time and require it to be re-inspected.

B. Every LSV operating under this chapter shall be kept in a clean and satisfactory condition according to rules and regulations promulgated by the MTLC.

C. Every LSV operating under this chapter shall annually undergo a detailed inspection conducted by an approved mechanic to determine if the vehicle conforms to the standards set out by the MTLC. A safety certificate form, when completed by an approved mechanic as defined in Metropolitan Code Section 6.74.010, shall be provided to the MTLC director within thirty days of the inspection. (Ord. BL2014-993 § 1, 2015)

6.73.330 Rate schedule and card for LSVs.

A. No owner or driver of a LSV shall charge a greater sum for the use of a LSV than what is reported to the MTLC and is posted in plain view on the vehicle.

B. The rate charged by a LSV company shall be based on:

1. A flat rate for each passenger; or

2. An hourly rate; or

3. A contract rate as provided below in Section 6.73.350.

C. The rate cards shall be displayed conspicuously on the LSV in such a position that it can be read easily by the occupants of the vehicle. Failure to display the rate card in a conspicuous manner shall be grounds for revocation or suspension of the permit for operation of the LSV in which the rate card was not properly displayed.

D. Passengers shall be informed of the rate prior to embarking. (Ord. BL2014-993 § 1, 2015)

6.73.340 Contract rates.

Nothing contained herein shall prevent a holder of a certificate of public convenience and necessity from making a contractual agreement with a company, agency, or organization to furnish transportation for employees, associates, clients, customers or members at a rate that is based on mileage, number of passengers, number of service hours, number of trips, number of passenger hours, weekly or monthly fees. Such a contractual agreement that provides for rates that differ from the rates ordinarily charged by the LSV operator must be recorded upon a written document that is legally executed by all parties and kept on file at the certificate holder's place of business subject to inspection at any reasonable time by the MTLC. (Ord. BL2014-993 § 1, 2015)

6.73.350 Advertising on vehicles.

Subject to the rules and regulations of the MTLC, it shall be lawful for any person owning or operating a LSV to permit advertising matter to be affixed to or installed in or on such vehicles. (Ord. BL2014-993 § 1, 2015)

6.73.360 Equipment.

A. An owner, operator, or driver of a LSV shall daily inspect LSVs and all equipment at the time of departure from and return to the certificate holder's place of business, documentation of which shall be available to the MTLC staff upon request.

B. No LSV engaged in the LSV business shall be driven or operated on a public street or byway of the city unless the owner or operator of the LSV has obtained a valid identification card issued by the MTLC director pursuant to a procedure and fees established by this chapter.

C. A LSV used in passenger transportation service shall not drive or transport more passengers than there are proper seating for, excluding the driver of the vehicle, and at no time shall the driver allow any passenger to ride in any area of the vehicle that was not specifically designed as a seat; provided that in no event shall the number of passengers in a LSV exceed seven.

D. If, upon any inspection, a LSV is found to be unsafe, unclean or unsightly, the MTLC staff or police officer may direct that the vehicle be taken out of service until such condition is corrected. Such vehicle shall be re-inspected and approved by the MTLC staff before returning to service, at which time a new permit shall be issued and a service fee (established by rule) shall be collected.

E. The MTLC may, by rule, establish additional inspection requirements for a LSV and other equipment used in the LSV service. (Ord. BL2014-993 § 1, 2015)

6.73.370 Duty to render service—Business requirements.

All persons engaged in any LSV service shall provide the MTLC with a business address for notice purposes and shall have the responsibility to notify the MTLC promptly upon a change of address. (Ord. BL2014-993 § 1, 2015)

6.73.380 Operating area.

LSVs shall operate upon the streets and routes or zones established by the MTLC or its staff. Any deviation from these approved streets and routes or zones must be approved by the MTLC or its staff. Any approved deviation must be reported to the MTLC or the MTLC staff prior to beginning of operations (Ord. BL2014-993 § 1, 2015)

6.73.390 Records and reports.

A. Each holder shall maintain at a single location business records of its LSV business. The records must be maintained in a manner approved by the MTLC director and contain the following information:

1. An identification of the LSVs operating each day;

2. An identification of the drivers operating the LSVs each day and a statement of the hours each driver operated the vehicle each day; and

3. Any other information the MTLC director determines necessary for monitoring the activities, operations, service, and safety record of the licensee.

B. A certificate holder shall make its records available for inspection by the MTLC staff, law enforcement officer or designated officials. (Ord. BL2014-993 § 1, 2015)

6.73.400 Accidents.

A. All accidents arising from or in connection with the operation of a LSV shall be reported as required by state law and additionally reported within the period of time provided for in the rules and regulations adopted by the MTLC from the time of occurrence to the MTLC staff if the accident results in:

1. Death or bodily injury to any person, or

2. Damage to any vehicle, or to any property in an amount exceeding the sum of one thousand dollars.

B. A driver operating a LSV at the time of an accident involving bodily injury is required to report for a drug screen, within twenty-four hours from the time of occurrence, at a testing site approved by the MTLC director. Failure to report for a screen shall result in revocation of the driver's permit. If there is cause to suspect that the medical condition of the driver may have contributed to the accident, the MTLC director may suspend the LSV driver's permit until the driver provides such information as the MTLC Director deems adequate to establish the driver does not have a medical condition that makes driving unsafe consistent with the relevant rules and regulations relating to same established by the MTLC.

C. A LSV damaged in an accident, but still operable without placing the driver or passengers at risk, must be repaired within an amount of time as shall be reasonable under the circumstances as determined by the MTLC director taking into consideration such factors as the parts and labor hours needed to make the repair. (Ord. BL2014-993 § 1, 2015)

6.73.410 Passengers—Receiving and discharging by drivers.

A. When available, drivers shall pull to the right hand curb to receive and discharge passengers. If no curb space is available, drivers shall pull to the extreme right-hand side of the road to receive and discharge passengers, except upon one-way streets where passengers may be discharged at either side of the roadway. Nothing in this section shall be construed to permit the parking of a LSV at any place where parking is otherwise restricted or prohibited.

B. Drivers shall not stop to load or unload passengers or their belongings in the intersections of any street, crosswalks or in any manner or other location that would be considered unsafe. No LSV shall load or unload in any such manner that will in any way impede or interfere with the orderly flow of traffic on the streets. (Ord. BL2014-993 § 1, 2015)

6.73.420 Passengers—Refusal to pay legal fare.

It is unlawful for any person to refuse to pay the legal fare of any LSV for the services mentioned in this chapter after having hired the same, and it is unlawful for any person to hire any such vehicle with intent to defraud the person hired of the value of such service. A driver shall have the right to demand payment in advance for a fare projected to be twenty dollars or more and may refuse employment unless so paid. (Ord. BL2014-993 § 1, 2015)

6.73.430 Refusal to carry orderly passengers.

No driver may refuse or neglect to convey an orderly person or persons, upon request, unless currently employed, the distance requested is unreasonably long for a LSV, a route to the destination cannot be safely traveled in a LSV, or unless the LSV driver has reason to believe that the person is engaged in a violation of federal, state or local laws or has reasonable basis to fear injury to him or herself. (Ord. BL2014-993 § 1, 2015)

6.73.440 Disposition of disorderly passengers.

Drivers shall act in a reasonable and professional manner in dealing with disorderly passengers. (Ord. BL2014-993 § 1, 2015)

6.73.450 Soliciting passengers.

No driver shall solicit passengers for a LSV, except when on the vehicle or while standing immediately adjacent to the curb. The driver of any LSV shall remain on the vehicle or immediately adjacent to the vehicle at all times when such vehicle is upon the public streets unless such vehicle is legally parked on the street. (Ord. BL2014-993 § 1, 2015)

6.73.460 Soliciting business.

No driver of a LSV shall offer any compensation of whatever form to any person or entity in exchange for the direction or recommendation of passengers to that driver's LSV. (Ord. BL2014-993 § 1, 2015)

6.73.470 Prohibited manner of soliciting.

No LSV driver shall solicit patronage in a loud or annoying tone of voice or in any manner to annoy any person or obstruct the movement of any persons, or follow any person for the purpose of soliciting patronage. (Ord. BL2014-993 § 1, 2015)

6.73.480 Taxicab stands—Prohibited vehicles.

LSVs shall not at any time occupy the space upon the streets that have been established as taxicab stands or other prohibited areas, provided that the metropolitan traffic and parking commission shall have the authority to

designate specific areas of the roadway for use as a loading/unloading zone for LSVs. (Ord. BL2014-993 § 1, 2015)

6.73.490 Inspectors—Reporting or citing violations.

The inspectors of the metropolitan government are authorized and are instructed to observe the conduct of holders of certificates and permits operating under this chapter. Upon discovering a violation of the provisions of this chapter, the inspector may either report the violation to the MTLC, which will order or take appropriate action, or issue a citation as authorized under this chapter. (Ord. BL2014-993 § 1, 2015)

6.73.500 LSV passenger's bill of rights.

The MTLC may promulgate rules containing a passenger's bill of rights for LSV's at their discretion. (Ord. BL2014-993 § 1, 2015)

Article IV. Violations—Civil Penalty Schedules

6.73.510 Violations—Penalties.

A. All provisions of this chapter shall be governed by the penalties and procedures for general ordinance violations set forth in Section 1.01.030.

B. Notwithstanding any provision contained herein, the MTLC shall have the authority to enforce the provisions of this chapter. (Ord. BL2014-993 § 1, 2015)

Chapter 6.74

OTHER PASSENGER VEHICLES FOR HIRE*

Sections:

6.74.010 Definitions.
6.74.015 Purpose and intent of chapter provisions.

Article I. Certificate of Public Convenience and Necessity

6.74.020 Required.
6.74.025 Classification of vehicles and services.
6.74.030 Application—Information and fees required.
6.74.035 Reserved.
6.74.040 Findings—Issuance of certificate—Fees required.
6.74.045 Annual renewal.
6.74.050 Liability insurance required.
6.74.055 Request for special temporary service.
6.74.060 Request for additional permits.
6.74.070 MTLC notification—Quarterly reports required.
6.74.080 Transfers—Fee.
6.74.090 Suspension and revocation.

Article II. Drivers' Permits

6.74.100 Required.
6.74.110 Application—Information and fees required.
6.74.120 Criminal background investigation.
6.74.130 Application approval or disapproval.
6.74.140 Issuance—Contents.
6.74.150 New application after denial.
6.74.160 Expiration—Issuance and replacement fee.
6.74.165 Hospitality training program—Participation required.
6.74.170 Display of permit.
6.74.180 Suspension and revocation.
6.74.185 Revocation of Tennessee driver's license.
6.74.190 Compliance with provisions.

Article III. Equipment

6.74.200 Vehicle permit required.
6.74.205 Ownership of vehicles.
6.74.210 Vehicle to display identification.
6.74.220 Inspection and maintenance of vehicles—Compliance required.
6.74.225 Limits on stretch limousines.
6.74.230 Vehicle age and mileage limit.
6.74.240 Inspection compliance decal required—Maintenance equipment.
6.74.250 Tests and inspections of vehicles.

Article IV. Operations

6.74.300 Reserved.
6.74.310 Daily manifests.
6.74.320 Pre-arrangement documented—Required procedures.
6.74.330 Operating records and reports.
6.74.340 Accidents.
6.74.350 Passengers—Maximum number.
6.74.360 Passengers—Receiving and discharging by drivers.
6.74.370 Reserved.
6.74.380 Prohibition against compensation for right to pick-up passengers.
6.74.390 Disposition of disorderly passengers.
6.74.400 Required items.
6.74.410 Prohibited items.
6.74.420 Driver appearance.
6.74.425 Vehicle safety devices.
6.74.430 Prohibited acts by driver.
6.74.440 MTLC staff—Reporting or citing violations.
6.74.450 Reserved.

Article V. Violations—Civil Penalty Schedules

6.74.500 Violation—Penalties.

*Editor's note—Ord. BL2014-952, § 1, passes December 16, 2014, amended Ch. 6.74 in its entirety to read as herein set out. Former Ch. 6.74, §§ 6.74.010—6.71.500, pertained to similar subject matter, and derived from Ord. BL2010-685 § 1, 2010; Ord. BL2010-793 § 5, 2010.

6.74.010 Definitions.

For purposes of this chapter:

"Active on the TNC dispatch system" means when the TNC operator is logged onto the transportation network company (TNC) application dispatch system showing that the TNC operator is available to pick up passengers, e.g., when driver mode is turned on; when a passenger is in the vehicle; when TNC dispatch records show the vehicle is dispatched; or when the driver has accepted a dispatch and is en route to provide transportation services to a passenger.

"Approved mechanic" means a mechanic who has met all requirements provided for in the rules or regulations adopted by the MTLC.

"As directed" means a request for transportation by prearrangement that does not have specific itinerary, route or stops; but is to be directed and determined by the passenger as the trip progresses.

"Call or demand" means transportation arrangements made indiscriminately and instantaneously with a request for service which includes, but is not limited to, the hailing of a taxicab or any other oral request for transportation service made from a public street location or other vehicular holding or waiting area as the pickup location. No passenger vehicle for hire, other than a taxicab, may be operated on call or demand. Call or demand does not apply to requests made for transportation by services operating only on pre-approved routes.

"Certificate" means a certificate of public convenience and necessity issued by the Metropolitan Transportation Licensing Commission (MTLC) director, authorizing the holder thereof to conduct a passenger vehicle for hire business within Davidson County.

"Chauffeur" has the same meaning as driver, as defined in this section.

"Classic or vintage limousine or sedan" means a limousine or sedan recognized by the Classic Car Club of America or other national car club recognized by the MTLC.

"Cruising" means the driving, parking or standing of a passenger vehicle for hire on the streets, alleys or public places of Davidson County for the purpose of attracting passengers for hire. No passenger vehicle for hire, other than a taxicab, may engage in cruising.

"Disability transport vehicle" means a special-purpose passenger vehicle for hire which is designed or constructed to transport passengers with disabilities.

"Disability transport service" means a special-purpose passenger vehicle for hire that provides transportation using disability transport vehicles. Disability transport services shall not include any transportation services to passengers with disabilities being offered by any government agency as a public service or by medical facilities exclusively to patients of the medical facility.

"Driver" means any individual who physically operates a passenger vehicle for hire.

"Driver's permit" means the permission granted by the MTLC director in accordance with Metropolitan Charter § 2.01(22) to an individual to drive a passenger vehicle for hire upon the streets and roadways of the area within the metropolitan government.

"For hire" means a transaction whereby any money, thing of value, charge tickets, surcharge, payment, pecuniary consideration or compensation, reward, donation, tip, or any other remuneration or profit is paid to, accepted by, or received by a driver, employee, agent, owner, or any other representative of a passenger vehicle for hire or a passenger vehicle for hire company in exchange for the temporary use by or for the transportation of a passenger, whether such is paid voluntarily or upon solicitation, demand, request, contract, agreement, or as a surcharge; or otherwise in conjunction with the purchase of parking wherein the transportation is part of the services provided.

"Holder" means a person to whom a certificate of public convenience and necessity has been issued by the MTLC director.

"Limousine" means a motor vehicle except a taxicab or sedan designed or constructed to accommodate and transport passengers for hire, with an extended wheel base and expanded seating capacity. The vehicle shall have additional rear seating capacity, area, and comforts; and shall be designed to transport not more than fifteen passengers, including the driver.

"Livery service" means a passenger vehicle for hire that provides transportation services using livery vehicles.

"Livery vehicle" means a motor vehicle designed or constructed to accommodate and transport passengers for hire, and shall include a limousine, a sedan, an SUV, or a passenger van, but shall not include a TNC vehicle.

"Manifest" means a daily record prepared by a passenger vehicle for hire driver or a TNC of all trips made, showing time and place of origin, destination or "as directed."

"MTLC staff" means the inspectors, director and other staff employed by the MTLC.

"Passenger van" means a motor vehicle designed or constructed to accommodate and transport passengers for hire that is designated by the manufacturer as a full-size van and designed to transport not more than fifteen passengers, including the driver. It cannot have an extended wheel base or an expanded seating.

"Passenger vehicle for hire" means any vehicle designed or modified to transport not more than twenty-one passengers, including the driver, and which is operated for hire. Excluded from this definition are:

1. Vehicles exclusively regulated and licensed by the state or federal government with respect to special public safety standards. For the purpose of this chapter, such exclusive regulation must include all of the following:

Vehicle condition standards and inspections;

Liability insurance standards and verification; and

Criminal background, medical and driving record checks for drivers.

2. Vehicles, and the drivers thereof, used exclusively in connection with a funeral or funeral service.

"Passenger vehicle for hire service" is any individual, partnership, corporation, association or public or private organization that provides transportation to persons for hire.

"Person" means any individual, partnership, corporation, association or public or private organization of any character.

"Pre-approved route" means a fixed route, with predetermined fixed pick-up and drop-off points, approved in advance by and on file with the MTLC director.

"Pre-arrangement" means a request for transportation of a specific passenger by registration in advance of boarding from a specified location, including pre-arrangement directly with a passenger vehicle for hire service or pre-arrangement through a third party (e.g., guest service desk, concierge desk or internet based technology applications, e.g., through a TNC digital platform). Such registration must have been made by contacting the passenger vehicle for hire service before the vehicle for hire was dispatched to render the transportation service or any service ancillary to the transportation, such as loading luggage.

"Public accommodation" means a business that provides lodging, food, entertainment, or other services to the public.

"Safety certificate" means a document from an approved mechanic certifying that a particular vehicle meets all vehicle safety terms set forth in this chapter and in rules of the MTLC adopted pursuant to this chapter.

"Sedan" means a motor vehicle designed or constructed to accommodate and transport passengers for hire that does not have an extended wheel base or an expanded seating capacity designed for the transport of persons. The vehicle will have no additional rear seating capacity, area or comforts; shall be designed to transport not more than five passengers, exclusive of the driver. As an exception, new categories of vehicles developed by the automobile industry and approved by the MTLC may be recognized as sedans.

"Shuttle" means a motor vehicle designed or constructed to accommodate and transport passengers for hire designed for the transportation of persons. The vehicle must be designed to transport not more than fifteen passengers, including the driver.

"Shuttle service" means a passenger vehicle for hire service that provides only shuttle transportation to or from prescribed locations on a pre-approved route.

"Solicit" means the distribution of flyers or other material, or an appeal by bell, horn, whistle, spoken words, or gestures by a driver or his or her agent directed at individuals or groups for the purpose of attracting passengers for immediate hire, not to include information provided through an internet based technology applications.

"Special-purpose passenger vehicle for hire" means any vehicle for hire that is not a limousine, passenger van, sedan, shuttle, SUV, taxicab, TNC vehicle, or horse-drawn carriage.

"Special temporary service" means an infrequent and unusual service requiring the temporary pooling of foreign livery vehicles to operate under the certificate of a duly licensed livery service. Special temporary services include, but are not limited to, pooling arrangements to service needs created by community-wide tourism or cultural events.

"SUV" means a motor vehicle designed or constructed to accommodate and transport passengers for hire that does not have an expanded seating capacity. The vehicle must be an automobile that is recognized by the manufacturer as a full-size sport utility vehicle, designed to transport not more than seven passengers, exclusive of the driver.

"Transportation Network Company" or "TNC" means a company or organization that uses a digital platform to connect passengers with prearranged transportation services for hire provided by drivers using their personal vehicles.

"TNC operator" means a person who provides transportation services for hire, using a TNC vehicle, to passengers connected to the TNC operator by prearrangement through the TNC's digital platform, and who meets the eligible qualifications for a driver's permit under this chapter and to whom such a driver's permit has been issued pursuant to the provisions of this chapter.

"TNC vehicle" means a passenger vehicle for hire that is a personal vehicle under the legal control of a TNC operator, documented to the satisfaction of the MTLC director, which is designed or constructed to accommodate and transport no more than seven persons, inclusive of the driver, which has been inspected as prescribed in and otherwise meets all of the requirements of this chapter and is used by that TNC operator to provide prearranged transportation services for hire, to passengers connected to the TNC operator by prearrangement using the TNC's digital platform.

"Tour vehicle" means a special-purpose passenger vehicle for hire that is used exclusively to transport a passenger or specified group from a point of origin to

various points of interest and return them to their same point of origin and is designed to transport not more than fifteen passengers, including the driver.

"Tour service" means a special-purpose passenger vehicle for hire service that uses charter or tour vehicles to transport passengers or specified groups of passengers, and that:

1. Is offered only upon a pre-arranged and pre-sold basis;

2. Transports from locations within Davidson County to locations either inside or outside Davidson County; and

3. Does not discharge passengers at points other than those from which they are picked up.

"Unique" means a passenger vehicle for hire that is custom-designed, unusual, and innovative, as further set forth in the rules adopted by the MTLC. (Ord. BL2017-737 § 1, 2017; Ord. BL2014-952 § 1, 2014)

6.74.015 Purpose and intent of chapter provisions.

It is declared that the purpose and intent of this chapter is that all motorized, non-taxi passenger vehicle for hire services, including but not limited to limousine, sedan, SUV, TNC vehicle, and shuttle livery services doing business within Davidson County, be licensed and regulated for the protection and welfare of the public. No unlicensed passenger vehicle for hire service may operate in Davidson County. (Ord. BL2014-952 § 1, 2014)

Article I. Certificate of Public Convenience and Necessity

6.74.020 Required.

No person shall operate or allow another to operate any passenger vehicle for hire, as defined in Section 6.74.010(19), owned or controlled by the person, to pick up passengers within the area of the metropolitan government without having first obtained a certificate of public convenience and necessity from the MTLC director. No other motor vehicle not specifically listed in this Title 6 or Title 12 of the Metropolitan Code of Laws may operate as a passenger vehicle for hire within the Metropolitan Government of Nashville and Davidson County. (Amdt. 1 to Ord. BL2017-737 § 2, 2017; Ord. BL2017-737 § 2, 2017; Ord. BL2014-952 § 1, 2014)

6.74.025 Classification of vehicles and services.

A. Classification. Every passenger vehicle for hire permitted pursuant to this chapter shall be classified according to one of the following categories:

1. Livery;

2. Shuttle;

3. Special-purpose passenger vehicle for hire; or

4. Transportation Network Company (TNC) vehicle.

B. Method of classification. An applicant for a certificate of public convenience and necessity shall request approval to provide service for one or more category(ies) of passenger vehicle for hire service. The classification shall be made by the MTLC director by descending from subparagraph A.1 to 4, above, until:

1. The vehicle definition contained in Section 6.74.010 applies to the proposed passenger vehicle for hire; and,

2. The proposed passenger vehicle for hire service satisfies the applicable requirements contained in this chapter.

The classification shall be consistent with the provisions of this chapter.

C. Purpose of classification. The purpose of the classification is to:

1. Ensure that different forms of passenger vehicle for hire services are recognized;

2. Avoid misleading or creating confusion among the traveling public; and

3. Provide notice to the holder of the appropriate classification and the applicable limitations and regulations pertaining to the category.

D. Category use restrictions. A certificate holder shall only provide the service specified below:

1. Livery.

a. Limited to a livery vehicle;

b. Pre-arranged directly with the livery service or pre-arranged through a third party (e.g., guest service desk, concierge desk or internet based technology applications); and

c. Fare can be determined on a flat fee, time-usage, distance or mileage basis or on a combination thereof. As a base rate, however, the initial charge for using the livery shall be no less than an amount set by the MTLC by rule, and approved by the council by resolution.

d. A certificate holder of any classification of passenger vehicle for hire, including but not limited to livery, may charge an additional cleanup fee to a passenger who damages the holder's vehicle or engages in behavior that necessitates a cleanup cost, so long as the fee does not exceed said cost.

2. Shuttle.

a. Limited to a shuttle vehicle lettered as a shuttle;

b. Uses pre-approved routes; and

c. Fixed fare not based solely on meter or mileage.

3. Special-purpose passenger vehicle for hire.

a. Limited to a passenger vehicle for hire other than a livery vehicle, shuttle, taxicab, TNC vehicle, or horse-drawn carriage;

b. Fare determined by either a pre-determined rate schedule based on proposed destination or by a time-usage basis, not meter or mileage;

c. Pre-arranged by written contract or a third party (e.g., guest service desk or concierge desk); and

d. Within limits specified in the application or those approved by the MTLC director in issuing a certificate of public convenience and necessity.

4. Transportation Network Company (TNC).

a. Limited to a TNC vehicle excluding livery vehicles, shuttles, taxicab, or horse-drawn carriage;

b. Fare determined by either a flat fee, vehicle mileage or time of use basis, or on a combination thereof. With a base rate of no less than an amount set by the MTLC by rule, and approved by the council by resolution.

c. Transportation service provided by a TNC operator using a TNC vehicle is pre-arranged with the passenger through the TNC's digital platform and communicated to the passenger and the TNC operator using the passenger's and TNC operator's internet enabled mobile device. (Ord. BL2014-952 § 1, 2014)

6.74.030 Application—Information and fees required.

A. An application for a certificate of public convenience and necessity shall be filed with the MTLC director for each classification of service to be provided in a format prescribed by the MTLC. Forms will be provided by the MTLC director and payment of a nonrefundable fee will be charged. The amount of the application fee shall be established by the MTLC and approved by the metropolitan council by resolution. It shall include a certification under oath by the applicant that all required components of the application have been submitted and are complete, true and accurate, in a form established by the MTLC. If a certificate is issued to the applicant, and this certification is found to have contained a misrepresentation, that shall be deemed sufficient cause for revocation of the certificate.

B. An applicant will be ineligible for consideration if:

1. Any of the partners, officers, directors, or members are under twenty-one years of age and/or the passenger vehicle for hire business has no separate legal existence beyond a shareholder, owner, or partner who is under the age of eighteen years of age;

2. Any of the owners, partners, officers, directors, or members (collectively, "principals") has been convicted of, forfeited bond, pleaded guilty or nolo contendere to, or been released from incarceration for a felony or any crime involving a controlled substance, prostitution, assignation, obscenity, or any crime of a sexual nature in any jurisdiction within seven years immediately preceding the date of application; or has been convicted of, forfeited bond, or pleaded guilty or nolo contendere to multiple felonies. To verify this information, all principals of an applicant for a certificate shall be required to undergo a criminal background check as part of the determination of eligibility. Such background checks shall be conducted as provided for in the rules or regulations adopted by the MTLC. All costs of the criminal background check shall be borne by the applicant.

3. Any of the owners, partners, officers, directors, or members has violated any portion of this chapter or of Chapter 6.72 of the Metropolitan Code within five years immediately preceding the date of application.

4. Any portion of the application is incomplete or contains incorrect or untruthful information. (Ord. BL2014-952 § 1, 2014)

6.74.035 Reserved.

6.74.040 Findings—Issuance of certificate—Fees required.

A. If the MTLC determines that further passenger vehicle for hire services are required and the applicant is qualified, the MTLC director may issue a certificate.

B. The certificate shall state the name, business address and telephone number of the applicant, the classification of service for which the certificate is issued, and the date of expiration. If the classification is for a special-purpose passenger vehicle for hire or TNC, the certificate may also specify any limitations or restrictions that apply.

C. The amount of the fee for the issuance of approved vehicle permits associated with the certificate shall be established by the MTLC by rule and approved by the metropolitan council by resolution. (Ord. BL2014-952 § 1, 2014)

6.74.045 Annual renewal.

A. All certificates issued under the provisions of this chapter shall expire one year before the date following the date on which the certificate was issued. All certificates may be renewed by the MTLC director for each successive year at least thirty days prior to their expiration. A renewal fee for each approved certificate shall be charged at the annual renewal of the certificate. The amount of the renewal fee shall be established by the MTLC by rule and approved by the metropolitan council by resolution. In addition, a fee will be collected to complete a background check every five years on any holder renewing a certificate.

B. Not less than annually, a random sampling of certificate holders will be subject to inspections to assure compliance with the terms of this chapter and the rules of the MTLC and consistency with the certifications made in their application. Inspections will cover certificate

holder operations, driver and equipment compliance, manifest records, driver/equipment violations, and insurance standards.

C. At least three months prior to the certificate holder's expiration, the certificate holder shall submit an annual report to the MTLC director that complies with terms established by this chapter and rules of the MTLC.

D. All applicants for renewal must be current with all assessments and taxes due to the metropolitan government. (Ord. BL2014-952 § 1, 2014)

6.74.050 Liability insurance required.

A. Before any certificate of public convenience and necessity shall be issued under this chapter by the MTLC director, or before the renewal of such certificate shall be granted, the applicant shall certify under oath to the MTLC director that all insurance coverage as required in this section is in place.

B. Minimum insurance requirements.

1. Holders of certificates of public convenience and necessity shall maintain commercial general (public) liability insurance, inclusive of contractual liability, in an amount of not less than one million dollars written on an occurrence basis.

2. Such holders shall also maintain commercial automobile liability insurance in an amount of not less than an amount to be set by the MTLC by rule, in consideration of the type of vehicle and the number of passengers it is designed to carry, and uninsured/underinsured motorist insurance coverage in an amount not less than twenty-five thousand dollars (bodily injury per person)/fifty thousand dollars (per accident)/fifteen thousand dollars (for property damage). All vehicles permitted under a single certificate shall be covered under one master policy held by that certificate holder with coverage of not less than one million dollars combined single limit. The holder of the certificate of public convenience and necessity shall certify under oath to the MTLC that it has met and will continue to meet all requirements as necessary to ensure that coverage remains in force for each passenger vehicle for hire currently or in future affiliated with the holder of the certificate of public convenience and necessity. Documentation of compliance with these requirements shall be available to the MTLC staff upon request. In the case of a TNC, the TNC's commercial automobile liability insurance coverage and uninsured/underinsured motorist insurance coverage shall be consistent with the provisions of subsections B.3. and C. below.

3. Automobile liability insurance with regard to TNC vehicles may either be consistent with subsection C., below, or be a policy of the TNC operator in which case the TNC operator's minimum policy limits shall consist of amounts to be set by the MTLC by rule, including for bodily injury per person, per accident, property damage and uninsured/underinsured motorist insurance coverage for bodily injury, per accident and property damage, for incidents occurring while the TNC operator is active on the TNC digital platform or with regard to uninsured/underinsured motorist insurance coverage, for incidents occurring while there is a passenger in the TNC vehicle.

4. The insurance company must be licensed to do business in the State of Tennessee or an eligible surplus line with the Tennessee Department of Commerce and Insurance and have a rating from AM Best or another other equivalently reliable rating system that meets the requirements of the rules or regulations adopted by the MTLC. Surplus line insurance may be required to have a higher rating than insurance from a company licensed to do business in the State of Tennessee.

C. Insurance Alternatives for TNC's.

1. To cover TNC operators that do not maintain a personal automobile liability policy as provided in subsection B.3, above, the holder of a TNC's certificate of public necessity and convenience shall, in the alternative, maintain one master commercial automobile liability policy held by that holder of the certificate of public convenience and necessity with coverage of not less than one million dollars combined single limit, under which all vehicles permitted under that holder's single certificate of public convenience and necessity and not already covered by a policy of the TNC operator meeting the requirements of subsection B.3., above, shall be covered, and which policy shall provide primary coverage for any incident that arises out of the operation of a TNC vehicle affiliated with that TNC any time after the TNC operator operating that TNC vehicle has accepted a ride on the TNC digital network or dispatch system until the passenger exits the vehicle. The TNC shall also provide uninsured/underinsured motorist insurance coverage, to be effective while there is a passenger in the TNC vehicle, in an amount not less than twenty-five thousand dollars (bodily injury per person)/fifty thousand dollars (per accident)/fifteen thousand dollars (for property damage).

2. The TNC's policy shall be supplemental to the TNC operator's personal policy at times when the TNC operator is logged onto the TNC digital network or dispatch system but has not accepted a ride or is not carrying a passenger, but, in the event that with regard to a claim that arises out of TNC operations during this time period, the TNC operator's personal insurance policy is not in place, denies coverage, or does not cover the full amount of the damages, the TNC's insurance shall

become primary coverage for the TNC vehicle of that particular TNC operator up to limits for this period to be set by the MTLC by rule.

3. The holder of the TNC's certificate of public convenience and necessity shall certify under oath to the MTLC that it has met and will continue to meet all requirements as necessary to ensure that coverage remains in force for each TNC vehicle currently or in future affiliated with the TNC and not already covered by a policy of the TNC operator meeting the requirements of subsection B.2., above. Documentation of compliance with these requirements shall be available to the MTLC staff upon request.

D. Effect of no insurance. The failure of a holder to maintain continuous coverage of insurance as required by this section or to ensure that coverage is maintained shall be deemed sufficient cause for revocation of the certificate of public convenience and necessity. The holder of the certificate of public convenience and necessity shall quarterly certify to the MTLC director that they maintain current endorsements including all of the applicable above-described coverages as to each permitted driver and vehicle pertaining to said certificate holder's certificate or that they ensure that such endorsements are maintained, and shall promptly make all such documentation available to the MTLC director upon request. (Amdt. 1 to Ord. BL2014-952 § 1, 2014; Ord. BL2014-952 § 1, 2014)

6.74.055 Request for special temporary service.

The MTLC shall be authorized to establish rules and procedures for the application and issuance of special temporary service permits allowing certificate holders of livery services to associate with foreign livery companies to meet the temporary demand for a special event. A special temporary service permit shall not exceed seven days in duration. For purposes of this chapter, all foreign livery companies, vehicles and drivers operating under this section shall be deemed a member of the certificate holder's fleet. There shall be a nonrefundable fee, in an amount to be established by the MTLC based upon the cost of processing the application, including background checks, charged for each request for a special temporary service permit, payable at the time of application. An additional fee in an amount to be established by the MTLC and approved by the metropolitan council by resolution shall be charged for the issuance of each approved vehicle permit associated with the special temporary service permit. Nothing contained in this chapter shall relieve the holder of a special temporary service permit from obtaining any and all necessary approvals as may be required to operate at the airport or from paying any fees required by the airport or any government agency. (Ord. BL2014-952 § 1, 2014)

6.74.060 Request for additional permits.

An application for additional vehicle permits must be filed with the MTLC director. An additional licensing fee in an amount to be established by the MTLC by rule and approved by the metropolitan council by resolution shall be charged for the issuance of each approved permit. (Ord. BL2014-952 § 1, 2014)

6.74.070 MTLC notification—Quarterly reports required.

A. Persons granted certificates under this chapter shall not change the address, company name, officers, ownership, or any other item in a company's original application without prior notification to MTLC staff. Any material changes must be brought before the MTLC for approval.

B. Persons granted certificates under this article shall be required to submit quarterly reports from their insurance carriers to keep the MTLC director advised of the vehicles being insured and operated. (Ord. BL2014-952 § 1, 2014)

6.74.080 Transfers—Fee.

A. No certificate may be sold, assigned, mortgaged or otherwise transferred, nor may there be any modification of ownership as to stock transfer, new or additional partners, etc., by a holder of a certificate without the consent of the MTLC, which shall not be unreasonably withheld. An application for a transfer shall be filed with the MTLC director upon the payment of a nonrefundable fee in an amount to be established by the MTLC based upon the cost of processing the application and of the administration and enforcement of this part.

B. Upon the filing of an application to transfer a certificate, the MTLC shall fix a time and place for a hearing on the application.

C. If the applicant meets the requirements for a certificate, the application may be approved. (Ord. BL2014-952 § 1, 2014)

6.74.090 Suspension and revocation.

A. A certificate issued under the provisions of this article may be revoked, suspended, placed on probation, otherwise restricted, or not renewed by the MTLC director if the holder thereof has:

1. Violated any of the provisions of this chapter or failed to comply with any rule or regulation established by the MTLC or the MTLC director;

2. Violated any provision of this Code or other ordinances of the metropolitan government or laws of the United States or the State of Tennessee, the violation of which reflects unfavorably on the fitness of the holder to offer transportation services;

3. Failed to pay assessments or taxes due to the metropolitan government; or

4. Made a misrepresentation or false statement when obtaining a certificate or additional permits, or transferring a certificate.

B. Prior to any action to revoke, suspend, place on probation, otherwise restrict, or not renew a certificate, the holder shall be given notice to the address listed on their certificate of the proposed action to be taken and by filing a written request within thirty days of the notice shall have an opportunity to be heard by the MTLC.

C. If the holder commits an act in violation of the Criminal Code and the MTLC director determines that holder poses a threat to the public safety, the MTLC director may enact an emergency suspension of the holder's certificate to remain in effect until the holder has the opportunity to be heard by the MTLC at the next available MTLC meeting, but in no circumstance later than sixty days from the date of the emergency suspension. (Ord. BL2014-952 § 1, 2014)

Article II. Drivers' Permits

6.74.100 Required.

No person shall operate a passenger vehicle for hire upon the streets and roadways of Davidson County, and no person who owns or controls a passenger vehicle for hire, as defined in Section 6.74.025, shall permit it to be so driven, and no passenger vehicle for hire licensed by the metropolitan government shall be so driven at any time for hire, unless the driver of such vehicle shall first obtain approval from the certificate holder and shall have established proven compliance with driver permit requirements as established herein. The certificate holder shall certify under oath to the MTLC director compliance with these requirements, and shall make documentation of same available upon request by the MTLC staff. (Ord. BL2014-952 § 1, 2014)

6.74.110 Application—Information and fees required.

A. An application for a passenger vehicle for hire driver's permit shall be filed with the certificate holder and shall comply with regulations set forth by the MTLC director.

B. Such application shall be certified under oath and shall at a minimum contain the following information:

1. The name, residential address, telephone number and date of birth of the applicant. No applicant under twenty-one years of age will be accepted.

2. The type(s) of vehicle(s) which the applicant will drive under the permit.

3. Any other request for information the commission director considers necessary or relevant.

C. The applicant shall provide copies of the following documents in order to submit his application:

1. A valid Tennessee driver's license that complies with all applicable requirements of state law as further specified in rules to be adopted by the MTLC.

2. A Social Security card or birth certificate.

3. If a resident alien, a current work permit or other valid United States Immigration and Customs Enforcement document.

4. On forms provided by the MTLC director, the applicant will provide a statement under penalty of perjury of their physical and mental fitness to act as for-hire driver. Such other information as may be reasonably required by regulation promulgated by the MTLC pursuant to this chapter.

5. Certification that the driver has completed the certificate holder's mandatory driver training program approved by the MTLC director.

D. Each application shall be accompanied by an official driver record issued by the Tennessee Department of Safety, no more than thirty days previous to the date of application. All applicants are required to meet the following standards:

1. No convictions in the last five years for any of the following offenses involving bodily injury or death and no convictions in the last three years for any of the following offenses not involving injury or death:

a. Hit and run;

b. Driving under the influence of an alcoholic beverage or drug;

c. Reckless driving.

2. For an initial permit, no more than three moving violations within the last three years and no more than two moving violations in the last year.

3. For a renewal permit, no more than four moving violations within the last three years and no more than two moving violations in the last year. (Ord. BL2014-952 § 1, 2014)

6.74.120 Criminal background investigation.

A. Upon receiving an application for a driver's permit from an applicant, certificate holders must require the applicant to undergo an identification and background check as required by state law as more specifically

provided by rules or regulations adopted by the MTLC. Upon receipt of the background check report, the director of the MTLC shall advise the certificate holder whether the applicant's background check disqualifies him or her from eligibility for a driver's permit.

B. Additionally, certificate holder shall check the National Sex Offender Database to verify whether the applicant is listed on the database, and shall certify under oath to the MTLC that it has conducted this check and verified that the applicant does not appear on the database. Any applicant listed on the database shall be disqualified for eligibility for a driver's permit.

C. Any applicant shall, in addition to any disqualifications listed elsewhere in this chapter, be disqualified if the applicant:

1. Has been convicted, pleaded guilty, nolo contendere, placed on judicial diversion pursuant to Tenn. Code Ann. Section 40-35-313, or been released from incarceration, probation or parole within a period of seven years prior to the date of application for violation of any of the following criminal offenses under the laws of Tennessee, any other state or of the United States of America:

- Homicide,
- Rape,
- Aggravated assault,
- Kidnapping,
- Robbery,
- Burglary,
- Domestic assault or domestic violence,
- Child sexual abuse,
- Any sex-related offense,
- Leaving the scene of an accident,
- Criminal solicitation, or criminal attempt to commit any of above,
- Perjury or false swearing in making any statement under oath in connection with the application for a driver's permit, or
- The felony possession, sale or distribution of narcotic drugs or controlled substances.

2. If, at the time of application, the applicant is charged with any offenses in 1. above, consideration of the application shall be deferred until entry of a plea, conviction, acquittal, dismissal, or other final disposition of the charges.

3. Has been convicted for a period of two years prior to the date of application of the violation of two or more sections of this Code or other ordinances governing the operation of vehicles for hire.

4. Has failed to disclose any criminal conviction, except traffic citations, on the application for a permit. (Ord. BL2014-952 § 1, 2014)

6.74.130 Application approval or disapproval.

Upon disapproval of a driver application by the MTLC director, applicants may file an appeal with the MTLC within thirty days of denial and request an appearance before the MTLC. The appeal shall be heard by the MTLC at the next available commission meeting with the appellant appearing in-person for consideration of the application. (Ord. BL2014-952 § 1, 2014)

6.74.140 Issuance—Contents.

Upon approval of an application for a passenger vehicle for hire driver's permit, the certificate holder shall certify under oath to the MTLC director that the application is complete and accurate prior to issuing a permit to the applicant, in a form approved by the MTLC director. (Ord. BL2014-952 § 1, 2014)

6.74.150 New application after denial.

Upon denial of an application for a driver's permit, no new application shall be considered for a period of three months. (Ord. BL2014-952 § 1, 2014)

6.74.160 Expiration—Issuance and replacement fee.

A. Each passenger vehicle for hire driver's permit shall be issued for a period of one year.

B. A permit may be issued to qualified applicants for driver permits upon the payment of an amount to be established by the MTLC and approved by the metropolitan council by resolution by the certificate holder to the MTLC, to cover the costs of investigation of a random sampling of the permit applications by the MTLC director. A fee in an amount to be established by the MTLC by rule and approved by the metropolitan council by resolution shall be charged for all replacement driver permits. The permit may consist of an electronic decal in a form subject to the approval of the MTLC director, so long as it is displayed in a format that is readily available, permits verification of its accuracy and identification with the driver displaying it, and is not capable of being altered or manipulated. (Ord. BL2014-952 § 1, 2014)

6.74.165 Hospitality training program—Participation required.

A. Beginning July 1, 2019, every newly licensed passenger vehicle for hire driver shall have attended an approved hospitality program prior to receiving a driver's permit.

B. Beginning July 1, 2019, every previously licensed passenger vehicle for hire driver shall attend an approved hospitality training course or refresher course prior to applying for or renewal of a driver's permit each year.

This course shall include updated information on any new MTLC regulations and safety requirements. (Ord. BL2019-1490 § 2, 2019)

6.74.170 Display of permit.

Every driver to whom a permit is issued under this article shall have available his driver's permit in accordance with MTLC rules while such driver is operating a passenger vehicle for hire, which may be an electronic decal consistent with the provisions in Section 6.74.160, above. If the driver or TNC operator ceases his or her affiliation with the certificate holder, the certificate holder must notify the MTLC Director within ten days. (Ord. BL2014-952 § 1, 2014)

6.74.180 Suspension and revocation.

A. The MTLC director is authorized to suspend, revoke, otherwise restrict, or not renew any driver's permit issued under this article for failing or refusing to comply with the provisions of this chapter or the MTLC rules and regulations. Upon suspension, revocation, or other restriction of any driver's permit, appeals can be made to the MTLC by filing a written request within thirty days of the action being appealed.

B. If the driver commits an act in violation of the Criminal Code and the MTLC director determines that driver poses a threat to public safety, the MTLC director may enact an emergency suspension of the driver's permit to remain in effect until the driver has the opportunity to be heard by the MTLC at the next available commission meeting, but in no circumstance later than sixty days from the date of the emergency suspension.

C. A driver whose permit is revoked by the MTLC or MTLC director may not reapply for ninety days from the date of revocation and will be treated as a new applicant. (Ord. BL2014-952 § 1, 2014)

6.74.185 Revocation of Tennessee driver's license.

The driver's permit of any driver whose Tennessee driver's license is suspended or revoked shall be invalid during any such period of suspension or revocation. (Ord. BL2014-952 § 1, 2014)

6.74.190 Compliance with provisions.

Every driver granted a permit under this article shall comply with all metropolitan government, state and federal laws. Failure to do so may result in the suspension or revocation of the passenger vehicle for hire driver permit. (Ord. BL2014-952 § 1, 2014)

Article III. Equipment

6.74.200 Vehicle permit required.

Each passenger vehicle for hire must have a permit. The permit will identify each vehicle by a unique number in accordance with rules and procedures established by the MTLC director, and will be associated with the specific classification and by certificate holder. Vehicle permits are not transferable to other vehicles or certificates. (Ord. BL2014-952 § 1, 2014)

6.74.205 Ownership of vehicles.

All vehicles permitted under this chapter must be titled, registered or leased to a certificate holder, except as authorized for special temporary service or as part of a TNC service. For any other purpose, the use of rental vehicles as passenger vehicles for hire is prohibited. (Ord. BL2014-952 § 1, 2014)

6.74.210 Vehicle to display identification.

All passenger vehicles for hire shall be equipped with identification as prescribed by the MTLC in rules and regulations. Except in the case of a permitted passenger vehicle for hire, no person shall equip, mark, paint, display marking lights or windshield lights, or in any way cause a motor vehicle to resemble a licensed/permitted passenger vehicle for hire or create a public impression that a motor vehicle is a permitted passenger vehicle for hire approved by the MTLC. In the case of a TNC, this identification may consist of a consistent trade dress (i.e. distinctive signage or display on the vehicle) that is sufficiently large and color contrasted when providing service, and in compliance with all other federal, state and local laws and regulations. The trade dress shall be sufficient to allow a passenger, government official, or member of the public to associate a vehicle with a particular licensed transportation provider. A TNC using such a trade dress to meet this identification requirement shall file a photograph of their trade dress with the MTLC director. (Ord. BL2014-952 § 1, 2014)

6.74.220 Inspection and maintenance of vehicles—Compliance required.

A. Prior to the use and operation of any vehicle under the provisions of this chapter, the vehicle shall be thoroughly examined and inspected by the certificate holder or a third party in accordance with rules and regulations prescribed by the MTLC. These rules and regulations shall be promulgated to provide safe transportation and specify such safety equipment and regulatory devices as the MTLC shall deem necessary. When a certificate holder finds that a vehicle has met all

the terms established by the MTLC, the holder shall certify this under oath to the MTLC director, who shall authorize a permit to be issued.

B. Every vehicle operating under this chapter is subject to random inspections to ensure the continued maintenance of safe operating conditions. A certificate holder shall make a passenger vehicle for hire available for inspection upon or prior to the expiration of the notice period provided for in the rules and regulations adopted by the MTLC, when ordered to do so by MTLC staff. If, upon inspection it is determined that a passenger vehicle for hire is not in compliance with this chapter or MTLC rules, the MTLC staff shall order the vehicle to be brought into compliance within a reasonable period of time and require it to be re-inspected.

C. Every vehicle operating under this chapter shall be kept in a clean and satisfactory condition, according to rules and regulations promulgated by the MTLC.

D. Annually, every vehicle operating under this chapter shall undergo a detailed mechanical inspection conducted by an approved mechanic pursuant to the requirements of rules and regulations adopted by the MTLC.

The records of these inspections must be maintained and made available to MTLC staff as provided by the rules and regulations adopted by the MTLC. The certificate holder shall certify under oath to the MTLC director compliance with this subsection. (Ord. BL2014-952 § 1, 2014)

6.74.225 Limits on stretch limousines.

The MTLC director may establish limits by its rules on the extent to which a limousine wheelbase may be extended and any of the safety-related requirements for stretch limousines. (Ord. BL2014-952 § 1, 2014)

6.74.230 Vehicle age and mileage limit.

A. Except for a classic, vintage or unique passenger vehicle for hire, no vehicle to be operated as a passenger vehicle for hire shall be more than fifteen years old.

B. The MTLC director is authorized to make a determination based on vehicle mileage and condition as to the acceptability of any vehicle to be rated as a classic, vintage or unique, and to make a determination as to the required replacement of those vehicles.

C. The MTLC shall establish by its rules a procedure by which an affected holder may seek a waiver under this section. (Ord. BL2019-1656 § 2, 2019; Ord. BL2014-952 § 1, 2014)

6.74.240 Inspection compliance decal required—Maintenance equipment.

A. It shall be unlawful to drive or to cause to be driven any passenger vehicle for hire that does not have a current inspection compliance decal approved by the MTLC director and issued by the certificate holder. Certificate holders shall cause the decals of any permitted vehicles which may be removed from service to be removed and returned to the MTLC staff. Circumstances under which e-decals may be used or under which the decals may be removable rather than permanently affixed, if any, may be determined by the MTLC by rule.

B. All vehicles shall be maintained in a safe and sanitary condition at all times and shall always be maintained in first class mechanical condition.

C. All safety, noise, and antipollution requirements specified by the United States Government and the state shall be complied with at all times.

D. The brakes shall always be kept in safe and proper working order.

E. All vehicles shall be air-conditioned and equipped with interior and exterior rearview mirrors, windshield washers, and two-speed windshield wipers, proper headlights and tail lights that shall be in operation from one-half hour after sunset to one-half hour before sunrise when the vehicle is in operation. For classic or vintage limousines and classic or vintage sedans, MTLC staff may allow waivers for items which were not factory-equipped.

F. The certificate holder shall be responsible for ensuring that the mechanical inspection includes, but is not limited to, the following items:

1. Vehicle identification number;
2. Headlights;
3. Tail lights;
4. Brake lights;
5. Turn signal lights;
6. License plate lights;
7. Horn;
8. Two-speed windshield wipers;
9. Interior and exterior rear vision mirrors;
10. Air conditioner;
11. Tires;
12. Muffler and tail pipe;
13. Condition of the body, fenders, paint, and interior;
14. Compliance with current state and local vehicle registration requirements, as applicable, as more specifically set forth in the rules and regulations adopted by the MTLC;
15. Mileage;
16. Steering;

17. Brakes, including foot and emergency;
18. Seat belts;
19. Windshield;
20. Rear window and other glass;
21. Doors; and
22. Speedometer.

(Ord. BL2014-952 § 1, 2014)

6.74.250 Tests and inspections of vehicles.

In addition to the review of submitted annual reports, all vehicles permitted under this chapter are subject to random inspection and testing by MTLC staff pursuant to rules and regulations adopted by the MTLC to assure that they are in compliance with the terms of this chapter and the rules and regulations of the MTLC.

If, as a result of the inspection or test, any vehicle is found not in compliance, the holder shall be notified of the defects observed, and he shall correct same to the satisfaction of thematic staff, in compliance with rules and regulations adopted by the MTLC. Any vehicle that is the subject of the notification shall not be operated on any street of the city until it has been re-inspected and determined to be in compliance with the requirements of inspection. The MTLC director and any employee to whom he may designate the duty of inspection of vehicles shall be given ready access to the vehicles at all reasonable times. (Ord. BL2014-952 § 1, 2014)

Article IV. Operations

6.74.300 Reserved.

6.74.310 Daily manifests.

A. Either the passenger vehicle for hire driver or the certificate holder shall maintain a daily manifest upon which is recorded all trips made by the driver each day, showing the time and place of origin of each trip and the name of the passenger requesting the ride. The forms for each manifest shall be furnished to the driver by the certificate holder (unless the certificate holder maintains the manifests) and shall be of a character approved by the MTLC director. All such completed manifests shall be returned to the certificate holder by the driver at the conclusion of his tour of duty unless the certificate holder maintains them itself in hardcopy or electronic format, i.e., in a .pdf or other format that cannot be electronically manipulated or altered.

B. Every certificate holder shall retain and preserve all drivers' manifests in a safe place or in a .pdf format or other format that cannot be electronically manipulated or altered for a period of twelve months, and such manifests shall be available to the MTLC, the MTLC director, or any designated representative at any time. (Ord. BL2014-952 § 1, 2014)

6.74.320 Pre-arrangement documented—Required procedures.

A. Livery services, TNCs, and any other passenger vehicle for hire services restricted to pre-arranged services must present contracts (trip tickets/waybills) for transportation services. Passenger vehicle for hire services operating by pre-arrangement shall maintain the ability to obtain unalterable written or electronic contracts (trip tickets/waybills) for services in advance of the scheduled pickup time. These contracts must include all of the following:

1. Date and time the arrangement was made;
2. Name of passenger;
3. Date and time passenger is to be picked up.
4. Point of origin; and
5. Name of certificate holder to provide the service.

B. The driver shall arrive at the point of origin no earlier than thirty minutes prior to the requested pick-up time. The driver of a passenger vehicle for hire limited to pre-arrangement must be able to provide documented proof of such pre-arrangement prior to picking up any passenger. Such proof may be documented and displayed digitally, and the driver shall not be required to surrender the phone upon which such information is displayed, but must be able to transmit a copy to the MTLC staff upon request.

C. Every certificate holder shall retain and preserve all pre-arrangement contracts in a safe place for at least twelve months, and such records shall be made available for inspection by the MTLC director or any designated representative at any time with forty-eight hours' notice.

D. No driver of a livery vehicle, TNC vehicle, or other passenger vehicle for hire service restricted to prearranged services shall:

1. Operate, park or stand a vehicle upon the property of any airport except in compliance with all applicable rules and requirements established by the Metropolitan Nashville Airport Authority and the MTLC.

2. Conduct any operations on the property of or into any airport in Davidson County unless such operations are authorized by the airport authority involved, and unless they are in compliance with all applicable rules and requirements established by Metropolitan Nashville Airport Authority.

E. The MTLC may, by rule, establish additional requirements for proof of pre-arrangement. (Ord. BL2014-952 § 1, 2014)

6.74.330 Operating records and reports.

Every holder of a certificate shall keep accurate daily records of the drivers and vehicles on duty. The forms utilized shall be approved by the MTLC director. The MTLC director has the right to review such records upon reasonable notice to the holder. (Ord. BL2014-952 § 1, 2014)

6.74.340 Accidents.

A. All accidents arising from or in connection with the operation of a passenger vehicle for hire shall be reported within the period of time provided for in the rules and regulations adopted by the MTLC from the time of occurrence to the MTLC director if the accident results in:

1. Death or bodily injury to any person, or

2. Damage to any vehicle, or to any property in an amount exceeding the sum of one thousand dollars.

B. A driver operating a passenger vehicle for hire at the time of an accident involving bodily injury is required to report for a drug screen, within twenty-four hours from the time of occurrence, at a testing site approved by the MTLC director. Failure to report for a screen shall result in revocation of the driver's permit. If there is cause to suspect that the medical condition of the driver may have contributed to the accident, the MTLC director may suspend the passenger vehicle for hire driver's permit until the driver provides a such information as the MTLC director deems adequate to establish the driver does not have a medical condition that makes driving unsafe consistent with the relevant rules and regulations relating to same established by the MTLC.

C. A passenger vehicle for hire damaged in an accident, but still operable without placing the driver or passengers at risk, must be repaired within an amount of time as shall be reasonable under the circumstances as determined by the MTLC director taking into consideration such factors as the parts and labor hours needed to make the repair. (Ord. BL2014-952 § 1, 2014)

6.74.350 Passengers—Maximum number.

No driver shall permit more persons to be carried in any passenger vehicle for hire than the manufacture's rated seating capacity, or the number of approved seat belts, whichever is less. No driver shall permit more than five persons to be carried in a sedan. (Ord. BL2014-952 § 1, 2014)

6.74.360 Passengers—Receiving and discharging by drivers.

Drivers of passenger vehicles for-hire regulated by this chapter shall not receive or discharge passengers in the roadway. Nothing in this section shall be construed to permit the parking of a vehicle at any place where parking is otherwise restricted or prohibited.

6.74.370 Reserved.

6.74.380 Prohibition against compensation for right to pick-up passengers.

It shall be unlawful for any passenger service company or TNC, driver's permit holder, chauffeur, or operator of any passenger vehicle for hire or any other person directly or indirectly to provide compensation in any form to any individual or entity or engage in any activity in connection with the payment of compensation for the right to pick up passengers or provide for-hire passenger service from any hotel, motel, apartment, restaurant, nightclub, bar, school, hospital, convalescent home, medical clinic or any other business establishment, or public facility. The license, permit, or certificate of any passenger service company, driver's permit holder, chauffeur, or operator of any passenger vehicle for hire violating this provision shall be subject to suspension up to twelve months for the first violation and shall be subject to revocation for repeat violations in accordance with the provisions of the Code. (Ord. BL2014-952 § 1, 2014)

6.74.390 Disposition of disorderly passengers.

Drivers shall act in a reasonable and professional manner in dealing with disorderly passengers. (Ord. BL2014-952 § 1, 2014)

6.74.400 Required items.

All passenger vehicles for hire operated under the authority of this chapter shall be equipped with a wireless form of communication (i.e. cellular or digital telephone, or two-way radio), and other items prescribed by the MTLC in rules and regulations. (Ord. BL2014-952 § 1, 2014)

6.74.410 Prohibited items.

No passenger vehicle for hire operated under the authority of this chapter shall be equipped with a toplight, taximeter, or taxicab signs; or be otherwise lettered, painted or marked in such a way to be misleading or such that may deceive the public as to its classification. (Ord. BL2014-952 § 1, 2014)

6.74.420 Driver appearance.

Every driver, while on duty, shall wear proper attire, and shall be dressed in compliance with the rules adopted by the MTLC. (Ord. BL2014-952 § 1, 2014)

6.74.425 Vehicle safety devices.

The MTLC may promulgate regulations with regard to the installation of safety devices. (Ord. BL2014-952 § 1, 2014)

6.74.430 Prohibited acts by driver.

A. No driver shall engage in illegally selling intoxicating liquors or controlled substances, or soliciting business from or for any house of ill repute or use his or her vehicle for any purpose other than the transporting of passengers.

B. No driver while on duty shall engage in abusive language or conduct, including but not limited to cursing or verbal insults.

C. While on duty, no driver shall be under the influence or engaged in the consumption of intoxicants, including but not limited to alcoholic beverages.

D. All driver's permit holders must comply with all state, local and federal laws.

E. No driver shall accept or attempt to solicit street hails. (Ord. BL2014-952 § 1, 2014)

6.74.440 MTLC staff—Reporting or citing violations.

MTLC staff are authorized and are instructed to observe the conduct of holders of certificates and permits operating under this chapter. Upon discovering a violation of the provisions of this chapter, MTLC staff may either report the violation to the MTLC, which will order or take appropriate action, or issue a citation as authorized under Section 6.74.500. (Ord. BL2014-952 § 1, 2014)

6.74.450 Reserved.

Article V. Violations—Civil Penalty Schedules

6.74.500 Violation—Penalties.

A. All provisions of this chapter shall be governed by the penalties and procedures for general ordinance violations set forth in Section 1.01.030

B. Notwithstanding any provision contained herein, the MTLC shall have the authority to enforce the provisions of this chapter. (Ord. BL2014-952 § 1, 2014)

Chapter 6.75

PEDICABS AND PEDAL CARRIAGES

Sections:

6.75.010 Definitions.

Article I. Certificate of Public Convenience and Necessity

6.75.020 Required and term.
6.75.030 Findings—Issuance of certificate or additional permits.
6.75.040 Application—Information and fees required.
6.75.050 Issuance and denial—Fees.
6.75.060 Annual renewal.
6.75.070 Insurance required.
6.75.080 Request for additional permits.
6.75.090 Suspension and revocation.
6.75.100 Enforcement by police officers.

Article II. Driver Permit

6.75.110 Permit required—Violations and term.
6.75.120 Application—Information and fees required.
6.75.130 Fingerprint-based criminal background investigation.
6.75.140 Application—Approval or disapproval.
6.75.150 Issuance—Permit contents and display.
6.75.160 Unpermitted drivers.
6.75.170 New application after denial.
6.75.180 Expiration—Issuance and replacement fee.
6.75.185 Hospitality training program—Participation required.
6.75.190 Suspension, revocation, and appeal.
6.75.200 Revocation of a valid driver's license.
6.75.210 Conduct of drivers.
6.75.230 Driver appearance.
6.75.240 Alcohol in a pedicab or pedal carriage.
6.75.245 Reserved.
6.75.250 Return of passengers' property.
6.75.260 Pedicab driver photo identification and uniform.
6.75.270 Passenger as controller of cab.
6.75.280 Compliance with provisions.

Article III. Equipment and Operation

6.75.290 Vehicle permit required.
6.75.300 Ownership and control of vehicles.
6.75.310 Vehicle to display identification.
6.75.320 Vehicle requirements.
6.75.330 Vehicle to display company name, color scheme insignia and numbering—Restrictions.
6.75.350 Inspection and maintenance of vehicles—Compliance required.
6.75.360 Rate schedule and card for pedicabs.
6.75.370 Contract rates.
6.75.380 Advertising on vehicles.
6.75.390 Pedal carriage/pedicab and equipment.
6.75.400 Duty to render service—Business requirements.
6.75.410 Operating area.
6.75.420 Records and reports.
6.75.430 Accidents.
6.75.450 Passengers—Receiving and discharging by drivers.
6.75.460 Passengers—Refusal to pay legal fare.
6.75.470 Refusal to carry orderly passengers.
6.75.480 Disposition of disorderly passengers.
6.75.490 Soliciting passengers.
6.75.500 Soliciting business.
6.75.510 Prohibited manner of soliciting.
6.75.520 Taxicab stands—Prohibited vehicles.
6.75.530 Application of Code provisions regarding bicycles.
6.75.540 Compliance with other laws.
6.75.550 Inspectors—Reporting or citing violations.
6.75.560 Pedicab passenger's bill of rights.
6.75.570 Limitation of service due to weather conditions.

Article IV. Violations—Civil Penalty Schedules

6.75.580 Violations—Penalties.

6.75.010 Definitions.

For purposes of this chapter:

"Certificate" means a certificate of public convenience and necessity, a license granted, upon application and

approval, by the metropolitan transportation licensing commission for the sole purpose of authorizing the certificate holder to provide transportation through a pedicab and may hold one or more permits as defined under this section.

"Certificate holder" means a person, company, corporation or association which has applied for, and been granted, a certificate of public necessity and convenience.

"Driver" means any individual who physically operates a pedicab as a for-hire vehicle under this chapter. This person may share additional, company-related titles, such as owner, employee of the owner, holder or independent contractor.

"Driver permit" means a permit issued by the MTLC to drive and operate a pedicab.

"For hire" means a transaction whereby any money, thing of value, charge tickets, surcharge, payment, pecuniary consideration or compensation, reward, donation, tip, or any other remuneration or profit is paid to, accepted by, or received by a driver, employee, agent, owner, or any other representative of a passenger vehicle for hire or a passenger vehicle for hire company in exchange for the temporary use by or for the transportation of a passenger, whether such is paid voluntarily or upon solicitation, demand, request, contract, agreement, or as a surcharge; or otherwise in conjunction with the purchase of parking wherein the transportation is part of the services provided.

"Holder" means a person to whom a certificate of public convenience and necessity has been issued by the commission.

"Inspector(s)" means the inspector(s) for the commission.

"Metro" means the Metropolitan Government of Nashville and Davidson County.

"Metropolitan area" means the area which comprises Nashville and Davidson County.

"Metropolitan transportation licensing commission", also referred to as "MTLC", means the metropolitan transportation licensing commission as established by the Metropolitan Code.

"MTLC director" means the director/executive secretary of the MTLC, as employed by the metropolitan department of public works on behalf of the MTLC.

"Owner" means the person who holds the legal title of the pedicab or pedal carriage.

"Passenger" means any person on a pedicab or pedal carriage other than the driver.

"Person" means any individual, partnership, corporation, association or public or private organization of any character.

"Pedal carriage" means a non-motorized bicycle with four or more wheels operated by one or more persons for the purpose of, or capable of, transporting additional passengers in seats or on a platform made a part of or otherwise attached to the pedal carriage as defined by Tenn. Code Ann. § 55-26-101. For purposes of this ordinance "pedal carriage" does not include a pedicab as defined herein.

"Pedicab" means any unibody non-motorized bicycle with three wheels operated by one person, including, but not limited to, rickshaws, for the purpose of, or capable of, transporting additional passengers in seats as defined by Tenn. Code Ann. § 55-26-101, duly licensed to operate as such by the MTLC, that is regularly engaged in the business of carrying passengers for hire, donation, gratuity or any other form of remuneration. "Pedicab" shall not include a bicycle built for two where the operators are seated one behind the other, nor shall it include a bicycle with trainer or beginner wheels affixed thereto, nor shall it include a wheelchair or other vehicle for the purpose of transporting a handicapped person, nor shall it include a tricycle built for a child or an adult with a seat for only one operator and no passenger.

"Pedicab permit" means a permit issued by the MTLC for a pedal carriage or pedicab to carry passengers.

"Pedicab driver's permit" means a permit issued by the MTLC for a person to operate a pedal carriage or pedicab to carry passengers.

"Permittee" means a holder of any permit issued under this chapter.

"Rate card" means a card issued by the MTLC for display in each pedal carriage or pedicab, which contains the rates of fare then in force.

"Solicit" means the distribution of flyers or other material, or an appeal by bell, horn, whistle, words, or gestures by a driver or his or her agent directed at individuals or groups for the purpose of attracting passengers for immediate hire.

"Taxicab" means a motor vehicle regularly engaged in the business of carrying passengers for hire, donation, gratuity or any other form of remuneration, having a seating capacity of less than nine persons and not operated on a fixed route.

"Taxicab stand" means a place alongside a street, or elsewhere, where the MTLC has authorized a holder of certificate of public convenience to park for picking up or discharging passengers.

"Traffic and parking commission" means the Metropolitan Traffic and Parking Commission as established by the Metropolitan Charter and Code of Laws. (Ord. BL2014-925 § 1, 2014)

Article I. Certificate of Public Convenience and Necessity

6.75.020 Required and term.

A. No pedal carriage or pedicab shall be used or operated on a for hire basis by any person in the territorial jurisdiction of the metropolitan government without an owner or operator having first obtained a certificate of public convenience and necessity. Each certificate shall be valid for one year and shall be subject to renewal pursuant to the provisions set forth in this article.

B. It shall be unlawful for any person to transport or offer to transport passengers in any pedal carriage or pedicab which does not have affixed to the pedal carriage or pedicab a valid permit issued through the MTLC.

C. Certificates shall not be transferred, sold or given from one owner to another including the sale of one pedal carriage or pedicab company in its entirety to another.

D. The MTLC shall track all certificates, and after the renewal period, if the certificate has not been renewed it shall be determined to be void. (Ord. BL2014-925 § 1, 2014)

6.75.030 Findings—Issuance of certificate or additional permits.

A. If the MTLC finds that further or additional pedicab or pedal carriage service in the metropolitan government area is required by the public convenience and necessity and that the applicant is fit, willing and able to provide such service and to conform to the provisions of this chapter and the rules promulgated by the MTLC, the MTLC may issue a certificate of public convenience and necessity, stating the name and address of the applicant, the number of vehicles authorized upon such certificate and the date of issuance.

B. In making the above findings, the MTLC shall, at a minimum, take into consideration the number of pedicabs and pedal carriages already in operation, whether existing service is adequate to meet the public need; the character, experience, financial condition and responsibility of the applicant, and such criteria as may be adopted by the MTLC in its rules. (Ord. BL2014-925 § 1, 2014)

6.75.040 Application—Information and fees required.

A. An application for a certificate of public convenience and necessity shall be filed with the MTLC for each classification of service to be provided. Forms will be provided by the MTLC and payment of a nonrefundable fee will be charged. The amount of the application fee shall be established by the MTLC based upon the cost of processing the application.

B. The application shall require the following information:

1. Name and address of applicant;

a. Sole-proprietor—Name and address of the owner.

b. Partnership-Names and addresses of all partners.

c. Corporation or association—Names and addresses of all the officers, directors, and members.

2. Business name (D/B/A), business address and telephone number if different from above;

3. A background check of each person;

4. Proof of U.S. citizenship or legal residency for each person;

5. Names and addresses of two references as to the applicant's financial responsibility;

6. Prior experience of applicant in transport of passengers;

7. Classification of service to be provided;

8. Number of vehicle permits requested, and copy of proof of ownership or other evidence of lawful control for each vehicle to be operated under the certificate;

9. Procedures for training drivers;

10. Rules and regulations governing driver appearance and conduct;

11. Any additional information the applicant desires to include to aid in the determination of whether the requested certificate should be issued; and

12. Such further information as the MTLC may require.

C. An applicant will be ineligible for consideration if:

1. Any of the owners, partners, officers, directors, or members are under twenty-one years of age and/or the pedal carriage or pedicab business has no separate legal existence beyond a shareholder, owner, or partner who is under the age of eighteen years of age;

2. Any of the owners, partners, officers, directors, or members has been convicted of, forfeited bond, pleaded guilty or nolo contendere to, or been released from incarceration for a felony or any crime involving a controlled substance, prostitution, assignation, obscenity, or any crime of a sexual nature in any jurisdiction within ten years immediately preceding the date of application; or has been convicted of, forfeited bond, or pleaded guilty or nolo contendere to multiple felonies.

3. Any of the owners, partners, officers, directors, or members has violated any portion of this chapter or of Chapter 6.72 of the Metropolitan Code within five years immediately preceding the date of application.

4. Any portion of the application is incomplete or contains incorrect or untruthful information. (Ord. BL2014-925 § 1, 2014)

6.75.050 Issuance and denial—Fees.

A. If the MTLC or the MTLC director determines that further pedal carriage or pedicab services are required and the applicant is qualified, the MTLC or MTLC director may issue a certificate.

B. The MTLC shall adopt the criteria for determining the necessity for additional pedal carriage or pedicab certificates.

C. Any person whose application for a certificate is denied by the MTLC director may file a written appeal with the MTLC within thirty days of denial and request an appearance before the MTLC and appear in-person for consideration of the certificate application.

D. The certificate shall state the name, business address and telephone number of the applicant, the classification of service for which the certificate is issued, and the date of expiration. If the classification is for a special-purpose pedicab, the certificate may also specify any limitations or restrictions that apply.

E. The MTLC will set a fee to be charged for the issuance of each approved pedicab permit associated with the certificate. (Ord. BL2014-925 § 1, 2014)

6.75.060 Annual renewal.

A. All certificates issued under the provisions of this chapter shall expire on April 30 of the year following the date on which the certificate was issued. All certificates may be renewed by the MTLC director for each successive year between April 1 and 30 of each year. A renewal fee for each approved certificate and other licensing fees shall be charged at the annual renewal of the certificate.

B. All applicants for renewal must be current with all assessments and taxes due to the metropolitan government.

C. If a licensed pedal carriage or pedicab company or individual fails to renew prior to the end of the renewal period, the renewal applicant shall be treated as a new applicant. (Ord. BL2014-925 § 1, 2014)

6.75.070 Insurance required.

A. Before any certificate shall be issued by the commission director, or before the renewal of such certificate shall be granted, the applicant or association shall be required to file an insurance policy and/or certificate of insurance with the MTLC director evidencing insurance coverage as required in this section.

B. Insurance coverage as provided in subsection (A) of this section means a policy of public liability insurance issued by an insurance company qualified to do business in the state and naming the metropolitan government as an additional insured. Any policy of public liability insurance issued in compliance with this article shall be for a term of not less than one year, and for any pedicab or pedal carriage insured there under shall afford protection to any third party sustaining injury or damage as a result of the negligent operation of any pedicab or pedal carriage, with the minimum amount of insurance to be one million dollars, known as combined single limit insurance coverage. Such policy shall expressly provide that it may not be canceled, except after thirty days written notice to the commission director. With regard to any holder of a certificate of convenience and necessity who serves or dispenses alcoholic beverages to customers, whether or not the certificate holder also supplies the alcoholic beverages served to the customers, the insurance coverage as provided in subsection (A) shall also mean a policy of liquor liability insurance, with the minimum amount of liquor liability insurance to be one million dollars, issued by an insurance company qualified to do business in the state and naming the metropolitan government as an additional insured, and complying in all other respects with the terms of this section.

C. Such certificate will certify that the policy provides for a minimum of one million dollars per pedicab or pedal carriage for liability imposed by law for damages on account of bodily injuries, death or personal damages, other than injuries, death or property damages of the company or driver, in any one accident resulting from the ownership, maintenance or use of such pedicab or pedal carriage. The certificate of insurance shall also list the serial number or identification number of each pedicab or pedal carriage that is insured.

D. The operation of any pedicab or pedal carriage within metro without having in force the public liability insurance policy as outlined in this section is hereby declared to be a violation of this article, subjecting the owner and/or certificate holder to all applicable penalties provided in this article and this chapter.

E. Any changes must be reported to the commission immediately. (Ord. BL2014-925 § 1, 2014)

6.75.080 Request for additional permits.

An application for additional pedicab and pedal carriage permits must be filed with the MTLC or the MTLC director. If approved, the established permit fee will be applied. (Ord. BL2014-925 § 1, 2014)

6.75.090 Suspension and revocation.

A. A certificate issued under the provisions of this chapter may be revoked, suspended, placed on probation, otherwise restricted, or not renewed by the MTLC if the holder thereof has:

1. Violated any of the provisions of this chapter or failed to comply with any rule or regulation established by the MTLC;

2. Violated any provision of this Code or other ordinances of the metropolitan government or laws of the United States or the State of Tennessee, the violation of which reflects unfavorably on the fitness of the holder to offer transportation services;

3. Failed to pay assessments or taxes due to the metropolitan government; or

4. Made a misrepresentation or false statement when obtaining a certificate or additional permits, or transferring a certificate.

B. Prior to any action to revoke, suspend, place on probation, otherwise restrict, or not renew a certificate, the holder shall be given notice to the address listed on their certificate of the proposed action to be taken and shall have an opportunity to be heard by the MTLC.

C. If the holder commits an act in violation of the Criminal Code and the MTLC director determines that holder poses a threat to the public safety, the MTLC director may enact an emergency suspension of the holder's certificate to remain in effect until the holder has the opportunity to be heard by the MTLC at the next available meeting, but in no circumstance later than sixty days from the date of the emergency suspension. (Ord. BL2014-925 § 1, 2014)

6.75.100 Enforcement by police officers.

Officers of the Metropolitan Nashville Police Department shall have the authority to enforce this chapter. A police officer, upon observing a violation of this chapter, of any regulation or rule established by the MTLC or the MTLC director pursuant to this chapter, shall take necessary enforcement action to insure effective regulation of pedal carriages and pedicabs. (Ord. BL2014-925 § 1, 2014)

Article II. Driver Permit

6.75.110 Permit required—Violations and term.

A. No person shall drive or otherwise operate a pedal carriage or pedicab engaged in the transportation of passengers unless he or she has a driver's permit. To qualify for a permit, an applicant must comply with all of the requirements and stipulations of this chapter and any rules and regulations adopted by the MTLC.

B. A person commits an offense if he or she operates a pedal carriage or pedicab in the Metropolitan area without a driver's permit issued by the MTLC.

C. A business commits an offense if it employs or otherwise allows a person to operate a pedal carriage or pedicab owned, controlled, or operated by the permittee unless the person has a driver's permit issued by the MTLC.

D. Each permit shall be valid for one year and shall be subject to renewal pursuant to the provisions set forth in this article. (Ord. BL2014-925 § 1, 2014)

6.75.120 Application—Information and fees required.

A. An application for a pedicab driver's permit shall be filed with the MTLC on forms provided by the MTLC.

B. Such application shall be certified under oath and shall at a minimum contain the following information:

1. The name, residential address, telephone number and date of birth of the applicant. No applicant under eighteen years of age will be accepted.

2. The type(s) of vehicle(s) which the applicant will drive under the certificate.

3. The years of experience of the applicant in the transportation industry.

4. The educational background of the applicant.

5. A concise history of the applicant's employment.

C. The applicant shall provide copies of the following documents in order to submit his application:

1. A valid driver's license issued by one of the fifty states within the United States of America for the issuance or renewal of a pedicab driver's permit.

2. A Social Security card or birth certificate.

3. If a resident alien, a current work permit or other valid United States Immigration and Customs Enforcement document.

4. Reserved.

D. Each application shall be accompanied by an official driver record obtained no longer than thirty days previous to the date of application. All applicants are required to meet the following standards:

1. No convictions in the last five years for any of the following offenses involving bodily injury or death and no convictions in the last three years for any of the following offenses not involving injury or death:

a. Hit and run;

b. Driving under the influence of an alcoholic beverage or drug;

c. Reckless or careless driving.

2. For an initial permit, no more than three moving violations within the last three years and no more than two moving violations in the last year.

3. For a renewal permit, no more than four moving violations within the last three years and no more than two moving violations in the last year. (Ord. BL2016-148 § 1, 2016; Ord. BL2014-925 § 1, 2014)

6.75.130 Fingerprint-based criminal background investigation.

A. All applicants for a pedicab driver's permit will undergo a fingerprint-based identification and background check. The MTLC staff shall collect background check fees from applicants and schedule them for fingerprinting. A background check report and a copy of the driving record (MVR) of the applicant, if any, shall be attached to the application and forwarded for consideration by the MTLC.

B. Any applicant shall, in addition to any disqualifications listed elsewhere in this chapter, be disqualified if the applicant:

1. Has been convicted, pled guilty, placed on probation or parole, pleaded nolo contendere, or been released from incarceration within a period of five years prior to the date of application for violation of any of the following criminal offenses under the laws of Tennessee, any other state or of the United States:

- Homicide,
- Rape,
- Aggravated assault,
- Kidnapping,
- Robbery,
- Burglary,
- Child sexual abuse,
- Any sex-related offense,
- Leaving the scene of an accident,
- Criminal solicitation, or criminal attempt to commit any of above,
- Perjury or false swearing in making any statement under oath in connection with the application for a driver's permit, or
- The felony possession, sale or distribution of narcotic drugs or controlled substances.

2. If, at the time of application, the applicant is charged with any offenses in subsection (1) of this section, consideration of the application shall be deferred until entry of a plea, conviction, acquittal, dismissal, or other final disposition of the charges.

3. Has been convicted of or released from incarceration due to two or more felony offenses within the past ten years.

4. Has been convicted for a period of two years prior to the date of application of the violation of two or more sections of this Code or other ordinances governing the operation of pedicabs.

C. If the applicant fails to disclose any criminal conviction, except traffic citations, on the application for a permit, the application may be referred to the MTLC for consideration. (Ord. BL2014-925 § 1, 2014)

6.75.140 Application—Approval or disapproval.

The MTLC or its staff shall, upon the consideration of the application and any reports and certificates required to be attached thereto, approve or reject the application. Any applicant rejected by the MTLC staff may file an appeal within thirty days of denial and request an appearance before the MTLC. The appeal shall be heard by the MTLC at the next available MTLC meeting with the appellant appearing in-person for consideration of the application. (Ord. BL2014-925 § 1, 2014)

6.75.150 Issuance—Permit contents and display.

A. Upon approval of an application for a pedicab driver's permit, the MTLC director shall issue a permit to the applicant, which shall bear the name, driver's permit number, height, date of birth, photograph of the applicant, and other information deemed appropriate.

B. Every driver shall at all times conspicuously display a permit either on the clothing of the driver's upper body or upon the pedal carriage or pedicab. A driver shall allow the MTLC director, MTLC inspector, or a police officer to examine the permit upon request. (Ord. BL2014-925 § 1, 2014)

6.75.160 Unpermitted drivers.

A. If any person is found operating any pedal carriage or pedicab within the metropolitan government area without a valid pedicab driver's permit on behalf of any holder of a certificate of necessity and public convenience, the MTLC director may immediately take action to suspend or revoke the certificate.

B. A person whose pedicab driver's permit is suspended shall not drive a pedal carriage or pedicab within the metropolitan government area during the period of suspension. (Ord. BL2014-925 § 1, 2014)

6.75.170 New application after denial.

Upon denial of an application for a driver's permit, no new application shall be considered for a period of three months. (Ord. BL2014-925 § 1, 2014)

6.75.180 Expiration—Issuance and replacement fee.

A. Each pedicab driver's permit shall be issued for a period of one year, or until March 31.

B. A permit may be issued to qualified applicants upon the payment of twenty dollars plus the costs of investigation. If the permit for the preceding year has been revoked, no new permit shall be issued without prior MTLC approval. A fee of ten dollars shall be

charged for all replacement driver permits. Such fees shall be in addition to the cost of any investigation. (Ord. BL2014-925 § 1, 2014)

6.75.185 Hospitality training program—Participation required.

A. Beginning July 1, 2019, every newly licensed driver shall have attended an approved hospitality program prior to receiving a pedicab driver's permit.

B. Beginning July 1, 2019, every previously licensed driver shall attend an approved hospitality training course or refresher course prior to applying for or renewal of a pedicab driver's permit each year. This course shall include updated information on any new MTLC regulations and safety requirements. (Ord. BL2019-1490 § 3, 2019)

6.75.190 Suspension, revocation, and appeal.

A. The MTLC director may suspend or revoke any applicant's license if he or she determines that the applicant fails to comply with any requirement of this chapter. The director shall notify the applicant of any specific failure to comply with this chapter resulting in the suspension or revocation of their license and the applicant's right to an appeal by first class mail, express mail, overnight carrier, or personal service. If the MTLC director suspends or revokes a license, the applicant may appeal within ten days of such suspension or revocation to the MTLC for a hearing to determine if such suspension or revocation is justified. The decision of the MTLC shall be final, subject to any appropriate judicial review.

B. The MTLC director is hereby given authority to suspend any pedicab driver's permit issued under this article for a driver's failure or refusal to comply with the provisions of this article. Such suspensions may not last for a period of more than thirty days. The MTLC director is also given authority to revoke any permit for failure to comply with the provisions of this article.

C. If a driver is charged in any court with a misdemeanor involving moral turpitude, or with any felony, or with driving while intoxicated or under the influence of drugs, or with violations of this article, the MTLC director is hereby given authority to suspend the driver's permit pending final disposition of the charges against them, and to revoke such permit upon conviction thereof.

D. The MTLC director may revoke a pedicab driver's permit if he or she determines that the permittee has engaged in conduct detrimental to the public safety.

E. The MTLC director may not suspend or revoke any permit unless the driver has received notice of the charges against them and has had the opportunity to present evidence on their behalf.

F. Any permittee whose license has been suspended or revoked by the MTLC director may file a written appeal with the MTLC within ten days. If an appeal is not made to the MTLC within ten days of the MTLC director's decision, the MTLC director's decision shall be final. A letter addressed to the MTLC and delivered to the MTLC office stating that an appeal from the decision of the MTLC director is desired shall perfect such appeal. The MTLC, as soon as practicable after receiving such notice of appeal, shall notify the applicant or permittee of the date and time of the hearing which shall be not less than five days after the mailing of such notice. After the hearing of the appeal, the MTLC shall sustain, modify or reverse the findings of the MTLC director, and shall notify the MTLC director and the applicant or permittee of its findings. The findings of the MTLC shall be final, subject to any applicable legal processes.

G. A driver whose permit is revoked may not reapply for ninety days from the date of revocation and will be treated as a new applicant. (Ord. BL2014-925 § 1, 2014)

6.75.200 Revocation of a valid driver's license.

A pedicab driver permit issued under this chapter shall be coterminous with the permittee's valid driver's license issued by one of the fifty states in the United States of America. Any time that a permittee's driver's license is suspended, revoked, or cancelled, their pedicab driver's permit shall likewise be immediately suspended, revoked, or cancelled. The pedicab driver's permit shall immediately be surrendered to the MTLC until such time as their driver's license is reinstated. (Ord. BL2014-925 § 1, 2014)

6.75.210 Conduct of drivers.

A driver shall at all times:

1. Act in a reasonable, prudent, safe, and courteous manner;

2. Not permit a person not possessing a pedicab driver's permit to operate the pedicab or exercise control over the operation of a pedal carriage;

3. Not permit more passengers to be carried in a pedal carriage or pedicab than for which there is proper seating, and at no time shall the driver allow any passenger to ride in any area of the pedal carriage or pedicab not specifically designed or designated as a seat;

4. Not permit any passenger twelve years of age or younger to ride in a pedal carriage or pedicab unaccompanied by an adult;

5. Travel only roads with speed limits that do not exceed thirty-five miles per hour, unless approved by the metropolitan traffic and parking commission.

6. Not operate a pedal carriage or pedicab in excess of fifteen miles per hour;

7. Not operate a pedal carriage or pedicab while under the influence of intoxicating beverages or drugs;

8. Not operate a pedal carriage or pedicab while possessing a lighted cigarette, cigar, or pipe at any time;

9. Observe and obey all state and local traffic laws and regulations;

10. Not permit a passenger to stand or ride on any part of the pedal carriage or pedicab other than the designated seating area while the pedal carriage or pedicab is in motion and to advise the passengers that they must be seated except when loading or unloading. (Ord. BL2014-925 § 1, 2014)

6.75.230 Driver appearance.

A. Every pedal carriage and pedicab driver, while on duty, shall keep a clean and well-groomed appearance, and shall be dressed in compliance with those rules adopted by the MTLC.

B. All drivers must wear uniform attire with the pedal carriage or pedicab company's logo.

C. The MTLC shall have the authority to adopt rules specifically governing the type(s) of permitted and prohibited attire. (Ord. BL2014-925 § 1, 2014)

6.75.240 Alcohol in a pedicab or pedal carriage.

A. A certificate holder or driver commits an offense if he or she provides an alcoholic beverage to a passenger for a fee or as part of the passenger transport service.

B. A certificate holder or pedicab/pedal carriage driver commits an offense if he or she provides or stocks any alcoholic beverage in the pedicab or pedal carriage.

C. Reserved. (Amdt. 1 to Ord. BL2021-911 § 3, 2021; Ord. BL2021-911 § 3, 2021; Ord. BL2014-925 § 1, 2014)

6.75.245 Reserved.

Editor's note—Ord. BL2019-1631, § 1, adopted August 20, 2019, repealed § 6.75.245, which pertained to excessive noise on a pedal carriage and derived from Ord. BL2014-925 § 1, 2014. The user's attention is directed to Title 9, Noise and Amplified Sound.

6.75.250 Return of passengers' property.

A driver of a pedal carriage or pedicab shall immediately attempt to return to a passenger any property left by the passenger in the pedal carriage or pedicab. If unable to locate the passenger, the driver shall turn the property into the certificate holder's company office at the end of the driver's shift or at the first available opportunity. In such cases, the certificate holder shall make a good faith effort to locate the passenger, and, if not successful, hold the property in storage at its location for at least thirty days, unless otherwise directed by the director. (Ord. BL2014-925 § 1, 2014)

6.75.260 Pedicab driver photo identification and uniform.

All drivers are required to wear a company issued photo identification and uniform clothing, including secure footwear. In addition, the driver must have the permit issued by the MTLC displayed. This identification shall be worn during all duty hours and shall be worn to be plainly visible at all times. A driver shall allow the MTLC director, MTLC inspector, or a police officer to examine the license upon request. (Ord. BL2014-925 § 1, 2014)

6.75.270 Passenger as controller of cab.

Drivers of pedicabs shall not cause a passenger to wait without the passenger's consent or to pick up additional passengers without the consent of current passenger(s). (Ord. BL2014-925 § 1, 2014)

6.75.280 Compliance with provisions.

Every driver granted a permit under this article shall comply with all metropolitan government, state, and federal laws. Failure to do so may result in disciplinary actions including suspension and up to revocation of the pedicab driver's permit. (Ord. BL2014-925 § 1, 2014)

Article III. Equipment and Operation

6.75.290 Vehicle permit required.

Each pedal carriage and pedicab must have a permit issued by the MTLC. The permit will identify each pedal carriage and pedicab by a unique number in accordance with rules and procedures established by the MTLC, and will be associated with the specific classification and by certificate holder. Permits are not transferable to other pedal carriages/pedicabs or other certificate holders. (Ord. BL2014-925 § 1, 2014)

6.75.300 Ownership and control of vehicles.

All pedal carriages and pedicabs permitted under this chapter must be under the lawful control of a certificate

holder demonstrated either by proof of ownership or a copy of a valid lease agreement. (Ord. BL2014-925 § 1, 2014)

6.75.310 Vehicle to display identification.

All pedal carriages and pedicabs operated under the authority of this chapter shall be equipped with identification as prescribed by the MTLC in rules and regulations. No person shall equip, mark, paint, display marking lights or windshield lights, or in any way cause any other vehicle to resemble a permitted pedal carriage or pedicab or create a public impression that any other vehicle is a permitted pedal carriage or pedicab approved by the MTLC. (Ord. BL2014-925 § 1, 2014)

6.75.320 Vehicle requirements.

A. Each pedicab in operation must meet the following minimum specifications:

1. Unibody frame construction;
2. Three wheels;
3. Rubber on all wheels;
4. If the pedicab is a rickshaw, it shall not have a width of more than fifty inches and length of no more than ten feet;
5. A fully operational horn or bell;
6. Headlights that have a beam of at least three hundred feet;
7. Flashing taillights that are visible from at least five hundred feet;
8. Mirror(s) affixed to the pedicab to reflect to the driver a view of at least two hundred feet from the rear of the pedicab;
9. Turn signals affixed to the front and rear of the vehicle;
10. Reflectors on the spokes of all wheels, front pedicab frame, and a red reflector mounted on each side of the rear of the pedicab, at least one inch from the outer edge and centered;
11. Hydraulic, mechanical disk, or drum brakes that are unaffected by wet conditions and that control the front and rear of the pedicab;
12. No more than one trailer may be attached to any pedicab and must be equipped with turn signals and red tail lights, provided that no passengers shall be transported in a trailer at any time;
13. Body painted with bright, reflective paint;
14. Clean and maintained in a good state of repair. All pedicabs shall be maintained by the certificate holder so as to be well painted and have a damage or deterioration free appearance, and in safe operational condition; and
15. If electric motor assistance is installed, it must meet all manufacturer standards and be inspected by a certified mechanic on an annual basis.

B. Each pedal carriage in operation must meet the following minimum specifications:

1. Unibody frame construction;
2. Four wheels;
3. Rubber on all wheels;
4. A fully operational horn or bell;
5. Headlights that have a beam of at least three hundred feet;
6. Flashing taillights that are visible from at least five hundred feet;
7. Mirror(s) affixed to the pedal carriage to reflect to the driver a view of at least two hundred feet from the rear of the pedal carriage;
8. Turn signals affixed to the front and rear of the vehicle;
9. Working running lights along the outermost parts of the front, sides, and rear of the vehicle so as to make the vehicle clearly visible to motorists at night;
10. Hydraulic, mechanical disk, or drum brakes that are unaffected by wet conditions and that control the front and rear of the pedal carriage;
11. Trailers are prohibited from being attached to pedal carriages;
12. Body painted with bright, reflective paint;
13. Clean and maintained in a good state of repair. All pedal carriages shall be maintained by the certificate holder so as to be well painted and have a damage or deterioration free appearance, and in safe operational condition; and

If electric motor assistance is installed, it must meet all manufacturer standards and be inspected by a certified mechanic on an annual basis. (Amdt. 1 to Ord. BL2014-925 § 1, 2014; Ord. BL2014-925 § 1, 2014)

6.75.330 Vehicle to display company name, color scheme insignia and numbering—Restrictions.

A. Each pedal carriage and pedicab shall bear on the rear of the vehicle, above the taillights, in letters not less than two inches in height, the name of the company, phone number of the company, and may, in addition, bear an identifying design which has been approved by the MTLC.

B. No pedal carriage or pedicab covered by the terms of this chapter shall be licensed which bears a color scheme, identifying design, monogram or insignia which, in the opinion of the MTLC, conflicts with or imitates any color scheme, identifying design, monogram

or insignia used by another pedal carriage or pedicab company in such manner as to be misleading or such that it tends to deceive or defraud the public.

C. If, after a certificate of public convenience and necessity has been issued for a pedal carriage or pedicab under this chapter, the color scheme, identifying design, monogram or insignia thereof is changed so as to be, in the opinion of the MTLC, in conflict with or imitate any color scheme, identifying design, monogram or insignia used by any other person, owner or operator, in such manner as to be misleading or such that it tends to deceive the public, the certificate of or certificate covering such pedal carriage or pedicab shall be suspended or revoked.

D. Each pedal carriage and pedicab shall bear on the rear and on each side, in numbers not less than two inches in height, an identifying serial number assigned by the MTLC. (Ord. BL2014-925 § 1, 2014)

6.75.350 Inspection and maintenance of vehicles—Compliance required.

A. Prior to the use and operation of any pedal carriage or pedicab under the provisions of this chapter, such vehicle shall be thoroughly examined and inspected by the certificate holder and found to comply with such rules and regulations as may be prescribed by the MTLC. These rules and regulations shall be promulgated to provide safe transportation and shall specify such safety equipment and regulatory devices as the MTLC shall deem necessary. Every pedal carriage and pedicab operating under this chapter shall be periodically inspected by the certificate holder at such intervals as shall be established by the MTLC to ensure the continued maintenance of safe operating conditions. A certificate holder, owner or driver shall make the pedal carriage or pedicab available for inspection at such place within the metropolitan area as the MTLC director or his designee may direct. If, upon inspection, the director or his designee determines that a pedal carriage or pedicab is not in compliance with this chapter or the pedal carriage/pedicab rules, the director or his designee shall, based upon the condition noted, order the pedal carriage or pedicab be removed from service or that the vehicle be brought into compliance within a reasonable period of time and require it to be re-inspected.

B. Every pedal carriage and pedicab operating under this chapter shall be kept in a clean and satisfactory condition according to rules and regulations promulgated by the MTLC.

C. Every pedal carriage and pedicab operating under this chapter shall annually undergo a detailed inspection conducted by an approved mechanic to determine if the vehicle conforms to the standards set out by the MTLC. A safety certificate form, when completed by an approved mechanic, shall be provided to the MTLC director within thirty days of the inspection. (Ord. BL2014-925 § 1, 2014)

6.75.360 Rate schedule and card for pedicabs.

A. No owner or driver of a pedicab shall charge a greater sum for the use of a pedicab or pedal carriage than what is reported to the MTLC and is posted in plain view on the vehicle. The basis for calculating the amount of the charge for the use of a pedicab or pedal carriage shall be displayed on the pedicab or pedal carriage at all times.

B. The rate cards shall be displayed conspicuously on the pedicab in such a position that it can be read easily by the occupants of the vehicle. Failure to display the rate card in a conspicuous manner shall be grounds for revocation or suspension of the permit for operation of the pedicab in which the rate card was not properly displayed.

C. Passengers shall be informed of the rate prior to embarking. (Ord. BL2014-925 § 1, 2014)

6.75.370 Contract rates.

Nothing contained herein shall prevent a holder of a certificate of public convenience and necessity from making a contractual agreement with a company, agency, or organization to furnish transportation for employees, associates, clients, customers or members at a rate that is based on mileage, number of passengers, number of service hours, number of trips, number of passenger hours, weekly or monthly fees, or any other reasonable and calculable basis, irrespective of the mileage charges, minimum charges, and waiting charges contained in this chapter or the certificate holder's filed rates for ordinary radio-dispatch, personal call or hailed service. Such a contractual agreement that provides for rates that differ from the rates ordinarily charged by the pedal carriage or pedicab operator must be recorded upon a written document that is legally executed by all parties and kept on file at the certificate holder's place of business subject to inspection at any reasonable time by the MTLC. (Ord. BL2014-925 § 1, 2014)

6.75.380 Advertising on vehicles.

Subject to the rules and regulations of the MTLC, it shall be lawful for any person owning or operating a pedal carriage or pedicab to permit advertising matter to be affixed to or installed in or on such vehicles. Bumper stickers are prohibited. (Ord. BL2014-925 § 1, 2014)

6.75.390 Pedal carriage/pedicab and equipment.

A. An owner, operator, or driver of a pedal carriage or pedicab shall daily inspect all pedal carriages and pedicabs and all equipment at the time of departure from and return to the certificate holder's place of business.

B. No pedal carriage or pedicab engaged in the pedal carriage or pedicab business shall be driven or operated on a public street or byway of the city unless the owner or operator of the pedal carriage or pedicab has obtained a valid identification card issued by the MTLC director pursuant to a procedure and fees established by this chapter.

C. A pedal carriage or pedicab used in passenger transportation service shall:

1. Have a valid permit conspicuously displayed on the vehicle at all times;

2. Be maintained in a safe and sanitary condition;

3. Not drive or transport more passengers than there are proper seating for, excluding the driver of the vehicle, except that passengers weighing forty pounds or less may be seated on the lap of a passenger who occupies a permanently affixed seat, and at no time shall the driver allow any passenger to ride in any area of the vehicle that was not specifically designed as a seat; provided that in no event shall the number of passengers on a pedal carriage exceed sixteen;

4. Display the name and telephone number of the pedal carriage or pedicab company with two inch letters on the rear of the vehicle. These signs must be displayed at all times that the vehicle is operating for business unless the vehicle is being used for a special event, such as a wedding or parade;

5. Reflectors must be affixed to the front and each of the rear wheels;

6. Be equipped with head lights and taillights;

7. A fully charged backup battery must be readily available and a pedal carriage or pedicab cannot operate without proper lights.

D. If, upon any inspection, a pedal carriage or pedicab is found to be unsafe, unclean or unsightly, the MTLC director or MTLC inspector or designee, may direct that the vehicle be taken out of service until such condition is corrected. Such vehicle shall be re-inspected and approved by the MTLC director, MTLC inspector or designee before returning to service, at which time a new permit shall be issued and a service fee (established by rule) shall be collected.

E. The MTLC may, by rule, establish additional inspection requirements for a pedal carriage or pedicab and other equipment used in the pedal carriage/pedicab service. (Ord. BL2014-925 § 1, 2014)

6.75.400 Duty to render service—Business requirements.

All persons engaged in any pedal carriage or pedicab service shall maintain a fixed, central place of business, as indicated in their application for a certificate of public convenience and necessity. Such businesses shall also provide service for the purpose of receiving calls and dispatching pedicabs. (Ord. BL2014-925 § 1, 2014)

6.75.410 Operating area.

Pedal carriages and pedicabs shall operate upon the streets within the metropolitan area on routes or zones, and within hours of operation, established by the MTLC or its staff. Any deviation from these approved routes, zones, or hours of operation must be approved by the MTLC or its staff. Any approved deviation must be reported to the MTLC or the MTLC director staff prior to beginning of operations. (Ord. BL2015-95 § 1, 2016; Ord. BL2014-925 § 1, 2014)

6.75.420 Records and reports.

A. Each holder shall maintain at a single location business records of its pedal carriage or pedicab business. The records must be maintained in a manner approved by the MTLC director and contain the following information:

1. An identification of the pedal carriages or pedicabs operating each day;

2. An identification of the drivers operating the pedal carriages/pedicabs each day and a statement of the hours each driver operated the vehicle each day; and

3. Any other information the MTLC director determines necessary for monitoring the activities, operations, service, and safety record of the licensee.

B. A certificate holder shall make its records available for inspection by the MTLC director, inspector, law enforcement officer or designated officials. (Ord. BL2014-925 § 1, 2014)

6.75.430 Accidents.

A. All accidents arising from or in connection with the operation of a pedal carriage or pedicab shall be reported within seventy-two hours from the time of occurrence to the MTLC director if the accident results in:

1. Death or bodily injury to any person, or

2. Damage to any vehicle, or to any property in an amount exceeding the sum of four hundred dollars.

B. A driver operating a pedal carriage or pedicab at the time of an accident involving bodily injury is required to report for a drug screen, within twenty-four

hours from the time of occurrence, at a testing site approved by the MTLC. Failure to report for a screen shall result in revocation of the driver's permit.

C. A pedal carriage or pedicab damaged in an accident, but still operable without placing the driver or passengers at risk, must be repaired within two weeks of the accident or removed from operation until repaired and inspected. (Ord. BL2014-925 § 1, 2014)

6.75.450 Passengers—Receiving and discharging by drivers.

A. Drivers shall not receive or discharge passengers upon the roadway, but shall pull to the extreme right-hand side of the road or to the sidewalk and there receive or discharge passengers, except upon one-way streets where passengers may be discharged at either side of the roadway in the absence of a sidewalk. As an exception, when access to curb space is blocked by parked vehicles, drives may pull to the extreme right-hand lane, and stop to expeditiously receive or discharge passengers from the right side of the vehicle. Nothing in this section shall be construed to permit the parking of a vehicle at any place where parking is otherwise restricted or prohibited.

B. Drivers shall not stop to load or unload passengers or their belongings in the intersections of any street, crosswalks or in any manner or other location that would be considered unsafe. No pedal carriage or pedicab shall load or unload in any such manner that will in any way impede or interfere with the orderly flow of traffic on the streets.

C. Pedal carriage drivers shall not allow additional passengers to board the pedal carriage after the vehicle has left its fixed starting point. (Ord. BL2014-925 § 1, 2014)

6.75.460 Passengers—Refusal to pay legal fare.

It is unlawful for any person to refuse to pay the legal fare of any pedal carriage or pedicab for the services mentioned in this chapter after having hired the same and it is unlawful for any person to hire any such vehicle with intent to defraud the person hired of the value of such service. A driver shall have the right to demand payment in advance for a fare projected to be twenty dollars or more and may refuse employment unless so paid. (Ord. BL2014-925 § 1, 2014)

6.75.470 Refusal to carry orderly passengers.

No driver may refuse or neglect to convey an orderly person or persons, upon request, unless currently employed, the distance requested is unreasonably long for a pedal carriage or pedicab, a route to the destination cannot be safely traveled in a pedal carriage or pedicab, or unless the pedal carriage/pedicab driver has reason to believe that the person is engaged in a violation of federal, state or local laws or has reasonable basis to fear injury to him or herself. (Ord. BL2014-925 § 1, 2014)

6.75.480 Disposition of disorderly passengers.

Drivers shall act in a reasonable and professional manner in dealing with disorderly passengers. (Ord. BL2014-925 § 1, 2014)

6.75.490 Soliciting passengers.

No driver shall solicit passengers for a pedicab, except when on the vehicle or while standing immediately adjacent to the curb. Street hails for pedal carriages are not permitted. The driver of any pedal carriage or pedicab shall remain on the vehicle or immediately adjacent to the vehicle at all times when such vehicle is upon the public streets; except that, when reasonably necessary, a driver may be absent from the vehicle for not more than ten consecutive minutes; provided further, that nothing herein contained shall be held to prohibit any driver from alighting to the street or sidewalk for the purpose of assisting passengers into or out of such vehicle. (Ord. BL2014-925 § 1, 2014)

6.75.500 Soliciting business.

No driver of a pedal carriage or pedicab shall offer any compensation of whatever form to any person or entity in exchange for the direction or recommendation of passengers to that driver's pedal carriage or pedicab. (Ord. BL2014-925 § 1, 2014)

6.75.510 Prohibited manner of soliciting.

No pedal carriage or pedicab driver shall solicit patronage in a loud or annoying tone of voice or in any manner to annoy any person or obstruct the movement of any persons, or follow any person for the purpose of soliciting patronage. (Ord. BL2014-925 § 1, 2014)

6.75.520 Taxicab stands—Prohibited vehicles.

A. Pedal carriages and pedicabs shall not at any time occupy the space upon the streets that have been established as taxicab stands or other prohibited areas.

B. The metropolitan traffic and parking commission shall have the authority to designate specific areas of the roadway for use as a loading/unloading zone for pedal carriages. (Ord. BL2014-925 § 1, 2014)

6.75.530 Application of Code provisions regarding bicycles.

A. Pedicabs and pedal carriages are exempt from the provisions of Section 12.60.060 of the Metropolitan Code requiring bicycles to stay as close as practicable to

the right-hand curb or the edge of the roadways. Pedicabs and pedal carriages shall instead move with traffic like motor vehicles.

B. Pedicabs and pedal carriages shall not be driven on sidewalks under any circumstances.

C. Pedicabs and pedal carriages shall not be operated within designated bicycle lanes, but shall instead move with traffic like motor vehicles.

D. Notwithstanding Section 12.60.140 of the Metropolitan Code pertaining to bicycles, pedicabs and pedal carriages are prohibited from parking on the sidewalk or from being secured to publicly owned poles.

E. Except to the extent otherwise provided in this chapter or this section, pedicabs and pedal carriages shall comply with all provisions of Title 12, Chapter 60 of the Metropolitan Code. (Ord. BL2014-925 § 1, 2014)

6.75.540 Compliance with other laws.

It shall be a violation of this chapter for a certificate holder or driver to violate any other applicable federal, state or local law or regulation in offering or providing pedicab or pedal carriage services. (Ord. BL2014-925 § 1, 2014)

6.75.550 Inspectors—Reporting or citing violations.

The inspectors of the metropolitan government are authorized and are instructed to observe the conduct of holders of certificates and permits operating under this chapter. Upon discovering a violation of the provisions of this chapter, the inspector may either report the violation to the licensing MTLC, which will order or take appropriate action, or issue a citation as authorized under Section 6.74.500. (Ord. BL2014-925 § 1, 2014)

6.75.560 Pedicab passenger's bill of rights.

A. All pedicab passengers within the area of the metropolitan government shall have the following rights:

1. A professional driver who is licensed and knowledgeable about popular pedicab routes, destinations, and attractions in Nashville and Davidson County;

2. A driver who knows and obeys all traffic laws and ordinances related to pedicabs;

3. A driver who is courteous while providing passenger assistance and a safe ride;

4. A quality pedicab that is mechanically free of problems and is clean;

5. A silent trip without the driver engaging in personal wireless telephone calls;

6. Direct the destination and the route to be traveled; and

7. The right to refuse to tip.

B. The information including in subsection A shall be posted in each pedicab in plain view of all passengers, and shall include the telephone number of the MTLC. (Amdt. 2 to Ord. BL2021-921 § 3, 2021; Amdt. 1 to Ord. BL2021-921 § 3, 2021; Ord. BL2021-921 § 3, 2021; Ord. BL2014-925 § 1, 2014)

6.75.570 Limitation of service due to weather conditions.

Pedicabs and pedal carriages shall not be operated when weather conditions are sufficiently adverse or inclement so as to endanger passengers or the public. The TLC, by rule, may adopt specific guidelines for the operation of pedicabs and pedal carriages in inclement weather conditions. (Ord. BL2014-925 § 1, 2014)

Article IV. Violations—Civil Penalty Schedules

6.75.580 Violations—Penalties.

A. All provisions of this chapter shall be governed by the penalties and procedures for general ordinance violations set forth in Section 1.01.030.

B. Notwithstanding any provision contained herein, the MTLC shall have the authority to enforce the provisions of this chapter. (Ord. BL2014-925 § 1, 2014)

Chapter 6.76

WEIGHTS AND MEASURES

Sections:

6.76.010 Standards.
6.76.020 Officers established—Powers and duties.
6.76.030 Weighmaster—Bond required.
6.76.040 Table of weights and measures.
6.76.050 Weighing and measuring devices—Reporting sales.
6.76.060 Weighing and measuring devices—Annual testing.
6.76.080 Location of scales in retail stores.
6.76.090 Inspection of devices—Adjustment and replacement.
6.76.100 Inspection records and reports.
6.76.110 Refusal to permit testing—Tampering with device.
6.76.120 Inaccurate or unapproved devices—Confiscation authority.
6.76.130 False certificates.
6.76.140 Reweighing or remeasuring.
6.76.150 Commodities sold by weight only—Exceptions.
6.76.160 Containers—Net contents and weight statements.
6.76.170 Coal sold by weight.
6.76.180 Ice sold from vehicles—Scale required.
6.76.190 Petroleum products sales—Tolerances allowed.
6.76.200 Motortruck scales required when.
6.76.210 Licensed weigher—Required when—Application for appointment.
6.76.220 Licensed weigher—Appointment—Bond and certificate.
6.76.230 Licensed weigher—Oath.
6.76.240 Licensed weigher—Issuance of certificate.
6.76.250 Licensed weigher—Revocation of license.
6.76.260 Sales, weight and delivery tickets—Coal and fuel products regulations.
6.76.270 Coal sales—Licensed weigher required when—Certificate.
6.76.280 Short loads—Violation, liability and enforcement.
6.76.290 Carload or bargeload shipments—Certain provisions not applicable.
6.76.300 Brakes inspection required when.

6.76.010 Standards.

The standards of weights and measures of solids, liquids and dry commodities for the metropolitan government shall be under the same standards of weights and measures provided by the Federal Bureau of Standards, and designated as follows:

"United States Department of Commerce, Daniel C. Roper, Sec'y., NATIONAL BUREAU OF STANDARDS, Lyman G. Briggs, Director, National Bureau of Standards Handbook H22, Superseding Handbook M85, Specifications, Tolerances, and Regulations for Commercial Weights and Measures and Weighing and Measuring Devices. (Issued Feb. 3, 1939)" (Prior code § 42-1-1)

6.76.020 Officers established—Powers and duties.

A. There shall be a sealer of weights and measures, deputy sealers of weights and measures and a weighmaster of the metropolitan government, which officers are vested with police power for the enforcement of all ordinances and laws, state and municipal, that pertain to their duties, but none other. The officers shall be under civil service, shall take the usual oath for officers for the faithful performance of their duties and shall give bond in the sum of one thousand dollars for the safekeeping of property committed to their care. The metropolitan government shall pay the premium of the bond for such officers.

B. The weighmaster shall write a legible handwriting. He shall be able to keep files and records, and shall make reports in his own handwriting to the director of the division of purchase each week, the time allowed for these reports being not later than Monday of the following week. He shall also make bond in an indemnity insurance company for not less than one thousand dollars for the faithful performance of his duties and the accounting of moneys handled by him. The metropolitan government shall pay the premium of the bond for the weighmaster.

C. The deputy sealers of weights and measures shall perform such duties as shall be designated by the sealer of weights and measures. (Ord. 89-1038 § 2, 1989; prior code § 42-1-2)

6.76.030 Weighmaster—Bond required.

A bond shall be executed by the metropolitan weighmaster for five hundred dollars for the faithful performance of his duties as such. The metropolitan government shall pay the premium of the bond for the weighmaster. (Prior code § 42-1-3)

6.76.040 Table of weights and measures.

The following shall be the legal and uniform standard of weights and measures in the metropolitan government for the sale and purchase of the following named products of the farm, orchard and garden, and articles of merchandise:

Apples, green	125 lbs. per bbl.
Apples, green	50 lbs. per bush.
Apples, dried	24 lbs. per bush.
Apple seed	40 lbs. per bush.
Blue grass seed	14 lbs. per bush.
Beans, dried	60 lbs. per bush.
Beans, green, in pods	30 lbs. per bush.
Beans, green, in pods	75 lbs. per bbl.
Beans, castor	46 lbs. per bush.
Beets	50 lbs. per bush.
Blackberries	48 lbs. per bush.
Blackberries, dried	28 lbs. per bush.
Bran	20 lbs. per bush.
Broom corn seed	42 lbs. per bush.
Buckwheat	48 lbs. per bush.
Barley	48 lbs. per bush.
Beef, net	200 lbs. per bbl.
Carrots	50 lbs. per bush.
Cabbage	50 lbs. per bush.
Cherries, with stems	56 lbs. per bush.
Cherries, without stems	64 lbs. per bush.
Corn, shelled	56 lbs. per bush.
Corn, in ear, shucked	70 lbs. per bush.
Corn, in ear, with shucks	74 lbs. per bush.
Corn, green, with shucks	100 lbs. per bush.
Corn, green, with shucks	250 lbs. per bbl.
Corn, matured, with shucks	350 lbs. per bbl.
Corn, pop	70 lbs. per bush.
Cornmeal, unbolted	48 lbs. per bush.
Cornmeal, bolted	48 lbs. per bush.
Cucumbers	48 lbs. per bush.
Chestnuts	50 lbs. per bush.
Cement	80 lbs. per bush.
Coke	40 lbs. per bush.
Charcoal	22 lbs. per bush.
Coal, stone	80 lbs. per bush.
Canary seed	60 lbs. per bush.
Clover seed, red and white	60 lbs. per bush.
Cotton seed	28 lbs. per bush.
Delinted cotton seed	33 1/3 lbs. per bush.
Flax seed	56 lbs. per bush.
Flour	196 lbs. per bbl.
Fish	200 lbs. per bbl.
Gooseberries	48 lbs. per bush.
Grapes, with stems	48 lbs. per bush.
Grapes, without stems	60 lbs. per bush.
Horseradish	50 lbs. per bush.
Hickory nuts	50 lbs. per bush.
Hair, plastering	8 lbs. per bush.
Hominy	62 lbs. per bush.
Hungarian seed	48 lbs. per bush.
Hemp seed	44 lbs. per bush.
Kobe lespedeza, common and 76 lespedeza seed	25 lbs. per bush.
Korean lespedeza seed	40 lbs. per bush.
Land plaster	100 lbs. per bush.
Lime, unslaked	80 lbs. per bush.
Lime, slaked	40 lbs. per bush.
Liquids	42 gals. per bbl.
Melon, cantaloupe	50 lbs. per bush.
Melon, cantaloupe	125 lbs. per bbl.
Millet, German, seed	50 lbs. per bush.
Millet, Missouri	50 lbs. per bush.
Millet, Tennessee	50 lbs. per bush.
Orchard grass seed	14 lbs. per bush.
Osage orange seed	33 lbs. per bush.
Oats, seed	32 lbs. per bush.
Onions, matured	56 lbs. per bush.
Onions, top buttons	28 lbs. per bush.
Onions, button, sets	32 lbs. per bush.
Parsnips	50 lbs. per bush.
Peas, dry	60 lbs. per bush.
Peas, green, in hull	30 lbs. per bush.
Peas, green, in hull	75 lbs. per bbl.
Peaches, matured	50 lbs. per bush.
Peaches, dried	26 lbs. per bush.
Pears, matured	56 lbs. per bush.
Pears, dried	26 lbs. per bush.
Plums	64 lbs. per bush.
Pie plant	50 lbs. per bush.
Potatoes, Irish	150 lbs. per bbl.
Potatoes, Irish	60 lbs. per bush.
Potatoes, sweet	50 lbs. per bush.
Potatoes, sweet	125 lbs. per bbl.
Peanuts	23 lbs. per bush.
Pork, net	200 lbs. per bbl.

Quinces, matured	48 lbs. per bush.
Raspberries	48 lbs. per bush.
Redtop seed	40 lbs. per bush.
Rye seed	56 lbs. per bush.
Rye grass (Italian) seed	40 lbs. per bush.
Sage	4 lbs. per bush.
Salt	50 lbs. per bush.
Sorghum molasses	12 lbs. per gal.
Sorghum seed	50 lbs. per bush.
Strawberries	48 lbs. per bush.
Salad, turnips, kale	30 lbs. per bush.
Salads, mustard, spinach	30 lbs. per bush.
Turnips	125 lbs. per bbl.
Turnips	50 lbs. per bush.
Tomatoes	56 lbs. per bush.
Timothy seed	45 lbs. per bush.
Velvet grass seed	7 lbs. per bush.
Walnuts	50 lbs. per bush.
Wheat	60 lbs. per bush.

(Prior code § 42-1-4)

6.76.050 Weighing and measuring devices—Reporting sales.

Any person engaged in the business of selling weighing or measuring devices shall report all sales of such devices for use in the metropolitan government area, within three days after the sale thereof, to the sealer of weights and measures. (Prior code § 42-1-5)

6.76.060 Weighing and measuring devices—Annual testing.

The sealer of weights and measures or the weighmaster shall, not less than once a year, test the accuracy of all weighing and measuring devices in use in the metropolitan government area and shall stamp them after inspection. (Prior code § 42-1-6)

6.76.080 Location of scales in retail stores.

All scales used in retail stores shall be so located that the weight indication of the scale is in plain view and readable by the buyer. No article shall be so placed as to obstruct such view. (Prior code § 42-1-14)

6.76.090 Inspection of devices—Adjustment and replacement.

The sealer of weights and measures of the weighmaster may inspect, during regular business hours, any place where scales or weights and measures are used. If any scales or weights and measures are found to be defective or inaccurate, they shall be either adjusted or replaced. The sealer of weights and measures shall be the sole judge of whether they shall be replaced or adjusted. (Prior code § 42-1-8)

6.76.100 Inspection records and reports.

The sealer of weights and measures or the weighmaster shall keep records of the date, proprietor, street number or peddler's license number, truck, scale or measure which has been inspected. Reports shall be made monthly to the purchasing agent of such matters of record as may be required by the purchasing agent; and, in addition, reports summarizing the annual activities of the division of weights and measures shall be made to the purchasing agent. (Prior code § 42-1-10)

6.76.110 Refusal to permit testing—Tampering with device.

It is unlawful for any person to refuse to permit the sealer of weights and measures or weighmaster to test or verify his measures, scales, weights or devices at any reasonable hour, or to change or tamper with any device for weighing and measuring after the same has been tested and sealed by the sealer of weights and measures. (Prior code § 42-1-9)

6.76.120 Inaccurate or unapproved devices—Confiscation authority.

After any measure or weight has been disapproved or any appliance which makes erroneous calculations or erroneous measurements has been found to be so inaccurate, it is unlawful to retain the possession and continue the use of such article. The sealer of weights and measures may confiscate and destroy or hold for evidence such false measures or weights. (Prior code § 42-1-11)

6.76.130 False certificates.

It is unlawful for any dealer in any commodity to issue a false certificate for any weight in dry or liquid measure. (Prior code § 42-1-12)

6.76.140 Reweighing or remeasuring.

The sealer of weights and measures or weighmaster shall have the right to have any commodity, the weighing or measuring of which is provided for in this chapter and Chapter 6.68, to be reweighed or remeasured; and it is unlawful for the dealer to refuse to submit to a request for such action. The sealer of weights and measures and the weighmaster shall have the right to require coal, coke, sand, gravel or any commodity sold in truck lots to be reweighed on the public scales. (Prior code § 42-1-13)

6.76.150 Commodities sold by weight only—Exceptions.

It is unlawful to sell at retail, except by weight, the following items: Beef, pork, mutton and all other meats, fowl, fish, flour, sugar, meal, lard, vegetable compounds and all other substitutes for lard, butter and butter substitutes and any and all types and kinds of fruits and vegetables, except the following items, which may be sold by the bunch, weight or piece: Lettuce, celery, cauliflower, fresh pineapple, radishes, carrots, fresh onions with tops, fresh turnips with green tops, fresh corn, broccoli, eggplant, avocado pears, cantaloupes, watermelons, honeydew melons, honeyball melons, collards, artichokes, lemons, oranges, grapefruit and tangerines. (Prior code § 42-1-15)

6.76.160 Containers—Net contents and weight statements.

The net contents of all commodities sold in containers or boxes shall be plainly printed or stenciled on such containers or boxes, or on tags firmly attached to such containers or boxes, expressed in terms of the exact net weight of the contents. It is unlawful for any person to sell or offer for sale, at wholesale or retail, display, advertise or otherwise represent such net weight erroneously and falsely. (Prior code § 42-1-16)

6.76.170 Coal sold by weight.

No person shall sell any coal in the metropolitan government area except by actual weight in the manner provided in this chapter and Chapter 6.68, nor unless such coal, prior to its delivery, shall have been weighed by a licensed weigher. (Ord. 89-1038 § 3, 1989; prior code § 42-1-17)

6.76.180 Ice sold from vehicles—Scale required.

A. It is unlawful for any person to sell ice from wagons or other vehicles without having in or attached to such vehicles scales by which accurate and correct weights may be made of ice sold therefrom.

B. It is the duty of any person selling ice from such vehicles, upon demand of the purchaser of such ice that the same be weighed and reweighed, to weigh or reweigh the same, and to charge only for the actual weight of the ice delivered. (Prior code § 42-1-31)

6.76.190 Petroleum products sales—Tolerances allowed.

A. In the sale of gasoline, kerosene, benzene, cleaning fluids or like fluids, the tolerance shall be one cubic inch per gallon.

B. For other petroleum products, meaning fuel oil, motor oil and like products, the tolerance shall be:

In quantities of less than one gallon	1½%
From one to fifteen gallons	1%
Over fifteen gallons	.1%

(Prior code § 42-1-30)

6.76.200 Motortruck scales required when.

A. Any person engaged in the business of buying and selling heavy commodities, such as coal, ice, sand, gravel or commodities of like character, shall install motortruck scales under specifications approved by the sealer of weights and measures.

B. A copy of the plans, specifications and blueprints of such motortruck scales shall be submitted to the sealer of weights and measures for approval before any such scales may be installed.

C. The sealer of weights and measures shall supervise the installation of the scales, and it is unlawful to use such scale until the same is tested, approved and sealed by the sealer of weights and measures. (Prior code § 42-1-18)

6.76.210 Licensed weigher—Required when—Application for appointment.

A. Every dealer in coal, coke, brickettes, sand, gravel, scrap iron and other heavy commodities, where there are motortruck scales to be used for weighing the same, shall have a licensed weigher appointed to be employed by such owner or dealer.

B. Any person desiring appointment as a licensed weigher shall fill out a blank application furnished by the sealer of weights and measures, which shall be approved by him prior to the appointment and qualification. (Prior code § 42-1-19)

6.76.220 Licensed weigher—Appointment—Bond and certificate.

A. Upon nomination by the dealer, the sealer of weights and measures shall have the power to appoint such persons as he deems necessary and proper to effectively carry out the provisions of this chapter and Chapter 6.68 to act as licensed weighers. The appointees shall, prior to their appointment, fill out and file an application for appointment as such and, before assuming the obligations of the office of licensed weigher, execute and deliver to the metropolitan government a bond in the penal sum of one thousand dollars for the faithful performance of their duties as such licensed weighers, upon forms prepared and approved by the department of law of the metropolitan government. Such bond shall be signed by the dealer employing such licensed weigher.

B. The bond shall guarantee the faithful performance of the licensed weigher's duties. Incorrect weights shall be considered a violation of the obligation of the bond, and the violator shall also be subject to having his certificate revoked for not less than six months.

C. The sealer of weights and measures shall issue to each licensed weigher a certificate upon his having qualified, stating the name and location of the dealer's place of business. (Prior code § 42-1-20)

6.76.230 Licensed weigher—Oath.

No person shall act as a licensed weigher until he shall have taken an oath before the sealer of weights and measures that he understands the act and business of weighing coal, ice, sand, gravel or commodities of like character, that he will faithfully and impartially discharge all the duties that may be required of him as a licensed weigher of such commodities by the metropolitan government and that he will comply with all the laws in force with regard to the weighing of such commodities and all laws that may be hereafter enacted with reference to such. (Prior code § 42-1-21)

6.76.240 Licensed weigher—Issuance of certificate.

Whenever the bond required by Section 6.76.220 shall have been given and the oath shall have been taken, the sealer of weights and measures shall issue to such licensed weigher a certificate stating that the bond has been furnished and the oath taken as required by law and that such person is authorized to act as a licensed weigher. (Prior code § 42-1-22)

6.76.250 Licensed weigher—Revocation of license.

In the event any licensed weigher shall violate the provisions of this chapter and Chapter 6.68, the sealer of weights and measures shall investigate such violation, and if it is found that the weigher has in fact violated the provisions of this chapter and Chapter 6.68, the license issued to him shall be revoked. (Prior code § 42-1-23)

6.76.260 Sales, weight and delivery tickets—Coal and fuel products regulations.

A. Any person with a fixed place of business selling coal or fuel products, coke, charcoal or briquette, sand, gravel and crushed stone, to be delivered in the metropolitan government area, shall provide the driver of the delivery vehicle with a ticket bearing the names of the seller, driver and weigher, description of the commodity, gross weight, tare weight, net weight and the name and address of the purchaser.

B. All sales of coal shall be made by the ton or fraction thereof, and a ton shall consist of two thousand pounds actual weight. Coal and other fuel products may be sold in bags or sacks, provided the net weight of the contents is clearly stenciled on the bag or written on a tag attached thereto; provided, that when, because of national emergency or other generally recognized economic condition, it becomes impossible to procure bags or sacks on the open market, wood or metal hampers may be used in lieu of bags or sacks when such wood or metal hampers have been approved for use by the sealer of weights and measures, who is authorized to select a stamp or other suitable method for identifying such approved hamper.

C. In the sale of these articles, a hundred weight shall consist of one hundred pounds avoirdupois, and a ton shall consist of two thousand pounds weight. All persons not maintaining a place of business for the sale of these articles, who shall make deliveries within the metropolitan government area, shall provide the driver of the conveyance with a weight certificate to be issued by a licensed weigher, showing that such load has been weighed by the licensed weigher, and this certificate shall show gross, tare and net weight. A copy of this ticket shall be delivered to the purchaser, together with a delivery ticket showing the seller, driver, name of purchaser and description of load. (Ord. 89-1038 § 4, 1989; prior code § 42-1-24)

6.76.270 Coal sales—Licensed weigher required when—Certificate.

A. It is unlawful for any person dealing in coal to sell as much as one-half ton thereof in the metropolitan government area unless the same shall have been weighed by a licensed weigher engaged or in the employ of such person.

B. The weigher shall issue, on regular blanks, a certificate showing the weight of the vehicle, the net weight and amount of the coal, the name of the dealer and the name of the driver of the vehicle, together with the date when such coal is weighed. The certificate shall be delivered to the driver of the vehicle in which the coal is to be delivered.

C. It shall be the duty of the driver to safely keep such certificate and deliver the same to the person to whom such coal is to be delivered, or to his agent, and the driver shall not deliver such coal or unload the same until the certificate shall be signed by such purchaser or his agent or unless, after a reasonable search, such person or his agent cannot be found. (Prior code § 42-1-25)

6.76.280 Short loads—Violation, liability and enforcement.

A. Any person believing that any load of coal, ice, sand, gravel or commodities of like character offered to be delivered to him does not weigh as much as the ticket represents shall have the same weighed at the nearest licensed scale and take a certificate of the weight, and if it shall be found that the load is as much as fifty pounds short in the weight or as much as fifty pounds less weight than represented by the ticket, the dealer so offering to sell such coal, ice, sand, gravel or commodities of like character shall be punished as provided in Section 1.01.030; but if it turns out in the weighing of such a load that it is not deficient in weight, then the person having the same weighed shall be liable to the dealer for the cost of weighing the same.

B. The sealer of weights and measures and the police department are empowered, at any time, to require the driver of any vehicle containing coal, ice, sand, gravel or commodities of like character to drive the same to the nearest licensed scale, for the purpose of having such commodity weighed. It shall be the duty of the sealer of weights and measures, from time to time, indiscriminately, to have vehicles carrying heavy commodities weighed for the purpose of enforcing the terms of this chapter and Chapter 6.68. (Ord. 95-1329 § 2 (part), 1995; Ord. 89-1038 § 5, 1989; prior code § 42-1-26)

6.76.290 Carload or bargeload shipments—Certain provisions not applicable.

Sections 6.76.170 and 6.76.200 through 6.76.280 shall not apply to materials sold in carload or bargeload lots, but the provisions now pertaining to gauging the same shall apply. (Prior code § 42-1-27)

6.76.300 Brakes inspection required when.

When coal, coke, stone, gravel and other heavy commodities are sold by persons not regularly engaged and maintaining a place of business for such purpose within the metropolitan government area who make deliveries of the same within the metropolitan government area, such persons shall not haul such heavy commodities over the streets, alleys and highways unless the vehicle in which same is being hauled shall have had its brakes inspected and approved within ten days of such haul, such inspection to be at the approval of the sealer of weights and measures or the weighmaster. (Prior code § 42-1-29)

Chapter 6.77

ENTERTAINMENT TRANSPORTATION

Sections:

6.77.010 Definitions.

Article I. Certificate of Public Convenience and Necessity

6.77.020 Required and term.
6.77.030 Findings—Issuance of certificate, renewal or additional permits.
6.77.040 Application—Information and fees required.
6.77.050 Issuance and denial—Fees.
6.77.060 Annual renewal.
6.77.070 Insurance required.
6.77.080 Request for additional vehicle permits.
6.77.090 Suspension and revocation.
6.77.100 Reserved.

Article II. Vehicle and Driver Permits

6.77.110 Permit required—Violations and term.
6.77.120 Application—Information and fees required.
6.77.130 Fingerprint-based criminal background investigation.
6.77.140 Application—Approval or disapproval.
6.77.150 Issuance—Permit contents and display.
6.77.160 Unpermitted drivers.
6.77.170 New application after denial.
6.77.180 Expiration—Issuance and replacement fee.
6.77.190 Hospitality training program—Participation required.
6.77.200 Suspension, revocation, and appeal.
6.77.210 Revocation of a valid driver's license.
6.77.220 Conduct of drivers.
6.77.230 Driver appearance.
6.77.240 Alcohol in an entertainment transportation vehicle.
6.77.250 Return of passengers' property.
6.77.260 Compliance with provisions.

Article III. Equipment and Operation

6.77.270 Vehicle permit required.
6.77.280 Ownership and control of vehicles.
6.77.290 Vehicle to display identification.
6.77.300 Vehicle requirements; safety standards.
6.77.310 Reserved.
6.77.320 Operating area.
6.77.330 Records and reports.
6.77.340 Accidents.
6.77.350 Passengers—Receiving and discharging by drivers.
6.77.360 Disposition of disorderly passengers.
6.77.370 Soliciting business.
6.77.380 Compliance with other laws.
6.77.390 Enforcement.
6.77.400 Reserved.
6.77.410 Limitation of service due to weather conditions.

Article IV. Violations—Civil Penalty Schedules

6.77.420 Violations—Penalties—Additional regulations.
6.77.430 Severability.

6.77.010 Definitions.

For purposes of this chapter:

"Certificate" means a certificate of public convenience and necessity, a license granted, upon application and approval, by the metropolitan transportation licensing commission for the sole purpose of authorizing the certificate holder to provide entertainment transportation through an entertainment transportation vehicle.

"Certificate holder" means a person, company, corporation or association which has applied for, and been granted, a certificate of public necessity and convenience.

"Change in control" shall mean either:

i. A change in ownership such that fifty percent or more of the direct or indirect voting or economic interests in such permittee is transferred to a transferee; or

ii. A change in the power to direct or cause the direction of management and policy of the permittee is transferred to a transferee.

iii. For the purposes of this definition, "permittee" means the holder of a certificate or permit issued pursuant to this chapter and "transferee" means a person, entity, or group of people or entities acting in concert.

"Driver" means any individual who physically operates an entertainment transportation vehicle as a for-hire vehicle under this chapter. This person may share

additional, company-related titles, such as owner, employee of the owner, holder or independent contractor.

"Driver permit" means a permit issued by the MTLC to drive and operate an entertainment transportation vehicle.

"Enclosed vehicle" means a fully enclosed entertainment transportation vehicle. "Unenclosed vehicle" means an entertainment transportation vehicle that does not meet the definition of an enclosed vehicle. The MTLC shall determine what constitutes a fully enclosed entertainment transportation vehicle and shall develop rules and regulations to ensure that both enclosed vehicles and unenclosed vehicles are safe and in compliance with existing noise ordinances.

"Entertainment transportation vehicle" means any motor vehicle that is designed or constructed to accommodate and transport more than one passenger for hire, the principal operation of which is confined to the area within the metropolitan area, whether it is operated on a fixed route or schedule, and where the passengers hire the motor vehicle not only as a means of transportation but also for some entertainment or social purpose. "Entertainment transportation" includes, but is not limited to, trucks, buses, and wagons/trailers pulled by a motor vehicle. "Entertainment transportation" does not include a limousine, sedan, shuttle, taxicab, electric-assist pedal carriage, or seated sightseeing vehicle.

"Entertainment transportation vehicle permit" means a permit issued by the MTLC for an entertainment transportation vehicle to carry passengers.

"Entertainment transportation vehicle driver's permit" means a permit issued by the MTLC for a person to operate an entertainment transportation vehicle to carry passengers.

"For hire" means a transaction whereby any money, thing of value, charge tickets, surcharge, payment, pecuniary consideration or compensation, reward, donation, tip, or any other remuneration or profit is paid to, accepted by, or received by a driver, employee, agent, owner, or any other representative of an entertainment transportation vehicle in exchange for the temporary use by or for the transportation of a passenger, whether such is paid voluntarily or upon solicitation, demand, request, contract, agreement, or as a surcharge; or otherwise in conjunction with the purchase of any other services wherein the entertainment transportation is part of the services provided.

"Holder" means a person to whom a certificate of public convenience and necessity has been issued by the commission.

"Inspector(s)" means the inspector(s) for the commission.

"Metro" means the Metropolitan Government of Nashville and Davidson County.

"Metropolitan area" means the area that comprises Nashville and Davidson County.

"Metropolitan transportation licensing commission", also referred to as "MTLC" or "the commission", means the metropolitan transportation licensing commission as established by the Metropolitan Code.

"MTLC director" means the director/executive secretary of the MTLC, as employed by the Nashville Department of Transportation and Multi-modal Infrastructure on behalf of the MTLC.

"Open container" means any container containing alcoholic beverages or beer, the contents of which are immediately capable of being consumed or the seal of which has been broken.

"Owner" means the person who holds the legal title of the entertainment transportation vehicle.

"Passenger" means any person on an entertainment transportation vehicle other than the driver and staff.

"Person" means any individual, partnership, corporation, association or public or private organization of any character.

"Permittee" means a holder of any permit issued under this chapter.

"Solicit" means the distribution of flyers or other material, or an appeal by bell, horn, whistle, words, or gestures by a driver or his or her agent directed at individuals or groups for the purpose of attracting passengers for immediate hire.

"Taxicab" means a motor vehicle regularly engaged in the business of carrying passengers for hire, donation, gratuity or any other form of remuneration, having a seating capacity of less than nine persons and not operated on a fixed route.

"Traffic and parking commission" means the Metropolitan Traffic and Parking Commission as established by the Metropolitan Charter and Code of Laws. (Ord. BL2025-954 § 1, 2025; Amdt. 2 to Ord. BL2022-1089 § 1, 2022; Ord. BL2022-1089 § 1, 2022; Ord. BL2021-911 § 2, 2021)

Article I. Certificate of Public Convenience and Necessity

6.77.020 Required and term.

A. No entertainment transportation vehicle shall be used or operated on a for hire basis by any person in the territorial jurisdiction of the metropolitan government without an owner or operator having first obtained a certificate of public convenience and necessity. Each certificate shall be valid for one year and shall be subject

to renewal pursuant to the provisions set forth in this article. Applications will be reviewed and considered at an annual meeting on a date set by the MTLC.

B. It shall be unlawful for any person to transport or offer to transport passengers in any entertainment transportation vehicle which does not have affixed to the entertainment transportation vehicle a valid permit issued through the MTLC.

C. No certificate issued pursuant to this chapter may be assigned, transferred, sold, or given from one person or entity to another without the express written approval of the MTLC upon the filing of an application for such a transfer. For the purposes of this chapter, a transfer includes a change in control of the certificate holder.

D. The MTLC shall track all certificates, and after the renewal period, if the certificate has not been renewed it shall be determined to be void. (Ord. BL2022-1089 § 2, 2022; Ord. BL2021-911 § 2, 2021)

6.77.030 Findings—Issuance of certificate, renewal or additional permits.

A. The MTLC must make a prerequisite finding as to what number of entertainment transportation vehicle service providers and vehicles are required by the public convenience and necessity, in the metropolitan government area, before it may issue any new certificates of public convenience and necessity, renew any previously issued expiring certificates, or add any additional permitted vehicles to an existing certificate-holder's permitted fleet. Further, the MTLC must find that an applicant is fit, willing, and able to provide such service and to conform to the provisions of this chapter and the rules promulgated by the MTLC, before the MTLC may issue a certificate of public convenience and necessity to a particular applicant. The certificate shall state the name and address of the applicant, the number of vehicles authorized upon such certificate and the date of issuance.

B. In making the above findings, the MTLC shall, at a minimum, take into consideration the number of entertainment transportation vehicles already in operation, whether existing service is adequate to meet the public need, or so great as to be exceeding the public need and unnecessarily adding to traffic congestion; the character, experience, financial condition and responsibility of the applicant, and such criteria as may be adopted by the MTLC in its rules. (Ord. BL2023-1869 § 1, 2023; Ord. BL2021-911 § 2, 2021)

6.77.040 Application—Information and fees required.

A. An application for a certificate of public convenience and necessity shall be filed with the MTLC for each classification of service to be provided. Forms will be provided by the MTLC and payment of a nonrefundable fee will be charged. The amount of the application fee shall be established by the MTLC based upon the cost of processing the application.

B. The application shall require the following information:

1. Name and address of applicant;

a. Sole-proprietor—Name and address of the owner.

b. Partnership—Names and addresses of all partners.

c. Corporation or association—Names and addresses of all the officers, directors, and members.

2. Business name (d/b/a), business address and telephone number if different from above;

3. A background check of each person;

4. Names and addresses of two references as to the applicant's financial responsibility;

5. Prior experience of applicant in transport of passengers;

6. Number of vehicle permits requested, and copy of proof of ownership or other evidence of lawful control for each vehicle to be operated under the certificate;

7. Procedures for training drivers;

8. Rules and regulations governing driver appearance and conduct;

9. Disclosure of prior state law or Metropolitan Code violations pertaining to noise from motor vehicles, lewd conduct as part of a commercial business, or alcoholic beverage open container laws;

10. A copy of the driver's official motor vehicle report or equivalent form showing applicant's driving history for the past three years from all states within which the applicant has resided in the past three years.

11. Any additional information the applicant desires to include to aid in the determination of whether the requested certificate should be issued; and

12. Such further information as the MTLC may require.

C. An applicant will be ineligible for consideration if:

1. Any of the owners, partners, officers, directors, or members are under twenty-one years of age and/or entertainment transportation vehicle business has no separate legal existence beyond a shareholder, owner, or partner who is under the age of twenty-one years of age;

2. Any of the owners, partners, officers, directors, or members has been convicted of, forfeited bond, pleaded guilty or nolo contendere to, or been released from incarceration for a felony, prostitution, assignation, obscenity, or any crime of a sexual nature in any jurisdiction within ten years immediately preceding the date of application; or has been convicted of, forfeited bond, or pleaded guilty or nolo contendere to multiple felonies.

3. Any of the owners, partners, officers, directors, or members has violated any portion of this chapter of the Metropolitan Code within five years immediately preceding the date of application.

4. Any portion of the application is incomplete or contains incorrect or untruthful information.

D. An applicant will be ineligible for consideration for a one year period if any applicant, owner, partner, officer, director, or member has been found by a court of competent jurisdiction in violation of state law or Metropolitan Code provisions three or more times within the past three hundred sixty-five days pertaining to noise from motor vehicles, lewd conduct as part of a commercial business, and/or alcoholic beverage open containers. (Ord. BL2022-1089 § 3, 2022; Ord. BL2021-911 § 2, 2021)

6.77.050 Issuance and denial—Fees.

A. If the MTLC or the MTLC director determines that further entertainment transportation vehicle services are required and the applicant is qualified, the MTLC or MTLC director may issue a certificate.

B. The MTLC shall adopt the criteria for determining the necessity for additional entertainment transportation vehicle certificates.

C. Any person whose application for a certificate is denied by the MTLC director may file a written appeal with the MTLC within thirty days of denial and request an appearance before the MTLC and appear in-person for consideration of the certificate application.

D. The certificate shall state the name, business address and telephone number of the applicant and the date of expiration.

E. The MTLC will set a fee to be charged for the issuance of each approved entertainment transportation vehicle permit associated with the certificate. There shall be a separate fee for the company/certificate holder and additional separate permit fees required on a per vehicle basis. (Ord. BL2022-1089 § 4, 2022; Ord. BL2021-911 § 2, 2021)

6.77.060 Annual renewal.

A. All certificates issued under the provisions of this chapter shall expire on April 30 of the year following the date on which the certificate was issued. All certificates may be renewed by the MTLC director for each successive year between April 1 and 30 of each year, if the applicant meets all applicable standards for renewal as established by the MTLC, and if it has not been determined, pursuant to Section 6.77.030, above, that the number of entertainment transportation vehicles already in operation is so great as to be exceeding the public need and adding to traffic congestion. A renewal fee for each approved certificate and other licensing fees shall be charged at the annual renewal of the certificate.

B. All applicants for renewal must be current with all assessments and taxes due to the metropolitan government.

C. If the MTLC has made a finding that the number of entertainment transportation vehicles already in operation immediately prior to the annual meeting, is so great as to be exceeding the public need and adding to traffic congestion, the MTLC shall determine what lower number would meet the public need. All renewing and new applicants shall be placed on notice that at the annual meeting they must show cause why their application for a new certificate, a renewal, or for the addition of vehicles to their fleet should be among the new number determined to be adequate to meet, and not exceed, the public need. It, accordingly, may not be possible to renew every certificate and/or vehicle that was permitted in the preceding year. In the event the number of permits is reduced and any existing permits are not renewed at the annual meeting, such non-renewed permitted vehicles may continue operating for one hundred days from the date of the non-renewal. In determining which applications will be granted, the MTLC may take into consideration the following non-exclusive factors, among any other criteria they see fit to adopt in their regulations. Whether the applicant for a new or renewed certificate has:

1. Violated any of the provisions of this chapter or failed to comply with any rule or regulation established by the MTLC;

2. Violated any provision of this code or other ordinances of the metropolitan government or laws of the United States or the State of Tennessee, the violation of which reflects unfavorably on the fitness of the holder to offer transportation services, including but not limited to, violations for excessive noise or alcoholic beverage open containers;

3. Failed to pay assessments or taxes due to the metropolitan government; or

4. Made a misrepresentation or false statement when obtaining or renewing a certificate or additional permits, or transferring a certificate.

D. If a licensed entertainment transportation vehicle company or individual fails to submit an application to renew by the deadline set by the MTLC for same, the license shall expire. (Ord. BL2023-1869 § 2, 2023; Ord. BL2022-1089 § 5, 2022; Ord. BL2021-911 § 2, 2021)

6.77.070 Insurance required.

A. Before any certificate shall be issued by the commission director, or before the renewal of such certificate shall be granted, the applicant or association shall be required to file an insurance policy and/or certificate of insurance with the MTLC director evidencing insurance coverage as required in this section.

B. Insurance coverage as provided in subsection (A) of this section means:

1. Holders of certificates of public convenience and necessity shall maintain commercial general (public) liability insurance, inclusive of contractual liability, in a minimum amount as determined by the MTLC in consultation with the Metropolitan Government Insurance and Claims Manager written on an occurrence basis. This insurance shall be issued by an insurance company qualified to do business in the state and naming the metropolitan government as an additional insured.

2. Such holders shall also maintain commercial automobile liability insurance that shall afford protection to any third party sustaining injury or damage as a result of the negligent operation of any entertainment transportation or other motor vehicle affiliated with the company in minimum amounts and under such coverages as determined by the MTLC in consultation with the Metropolitan Government Insurance and Claims Manager. These policies shall be issued by an insurance company qualified to do business in the state and naming the metropolitan government as an additional insured. These policies shall provide for the minimum coverage amounts (set as described above) to apply to each entertainment transportation vehicle for liability imposed by law for damages on account of bodily injuries, death or personal damages, other than injuries, death or property damages of the company or driver, in any one accident resulting from the ownership, maintenance or use of such entertainment transportation vehicle. The certificate of insurance shall also list the serial number or identification number of each entertainment transportation vehicle that is insured.

3. Any insurance policy issued in compliance with this article shall remain in place at least through the length of the licensing, and for any entertainment transportation vehicle insured thereunder Such policies shall expressly provide that they may not be canceled, except after thirty days written notice to the commission director.

C. [Reserved.]

D. The operation of any entertainment transportation vehicle within the metropolitan area without having in force the public liability insurance policy as outlined in this section is hereby declared to be a violation of this article, subjecting the owner and/or certificate holder to all applicable penalties provided in this article and this chapter.

E. Any changes in insurance must be reported to the commission immediately. (Amdt. 2 to Ord. BL2022-1089 § 6, 2022; Ord. BL2022-1089 § 6, 2022; Amdt. 2 to Ord. BL2021-911 § 2, 2021; Ord. BL2021-911 § 2, 2021)

6.77.080 Request for additional vehicle permits.

An application for additional entertainment transportation vehicle permits under the certificate issued pursuant to this article must be filed with the MTLC director. If approved, the established permit fee will be applied. (Ord. BL2022-1089 § 7, 2022; Ord. BL2021-911 § 2, 2021)

6.77.090 Suspension and revocation.

A. A certificate issued under the provisions of this chapter may be revoked, suspended, placed on probation, or otherwise restricted, by the MTLC if the holder thereof has:

1. Violated any of the provisions of this chapter or failed to comply with any rule or regulation established by the MTLC;

2. Violated any provision of this code or other ordinances of the metropolitan government or laws of the United States or the State of Tennessee, the violation of which reflects unfavorably on the fitness of the holder to offer transportation services, including but not limited to, violations for excessive noise or alcoholic beverage open containers;

3. Failed to pay assessments or taxes due to the metropolitan government; or

4. Made a misrepresentation or false statement when obtaining or renewing a certificate or additional permits, or transferring a certificate.

B. Prior to any action to revoke, suspend, place on probation, or otherwise restrict a certificate, the holder shall be given notice to the address listed on their certificate of the proposed action to be taken and shall have an opportunity to be heard by the MTLC.

C. If the holder commits an act in violation of the criminal laws of the United States of America or state of Tennessee Code and the MTLC director determines that holder poses a threat to the public safety, the MTLC director may enact an emergency suspension of the holder's certificate to remain in effect until the holder has the opportunity to be heard by the MTLC at the next available meeting, but in no circumstance later than sixty days from the date of the emergency suspension. (Ord. BL2023-1869 § 3, 2023; Ord. BL2022-1089 § 8, 2022; Ord. BL2021-911 § 2, 2021)

6.77.100 Reserved.

Article II. Vehicle and Driver Permits

6.77.110 Permit required—Violations and term.

A. No person shall drive or otherwise operate an entertainment transportation vehicle engaged in the transportation of passengers unless he or she has a driver's permit and a currently effective Tennessee commercial or other legal driver's license with a passenger (P) endorsement. To qualify for a permit, an applicant must comply with all of the requirements and stipulations of this chapter and any rules and regulations adopted by the MTLC.

B. A person commits a violation of this chapter if he or she operates an entertainment transportation vehicle in the Metro area without a driver's permit issued by the MTLC.

C. A business commits a violation of this chapter if it employs or otherwise allows a person to operate an entertainment transportation vehicle owned, controlled, or operated by the permittee unless the person has a driver's permit issued by the MTLC.

D. Each permit shall be valid for one year and shall be subject to renewal pursuant to the provisions set forth in this article. (Ord. BL2022-1089 § 9, 2022; Ord. BL2021-911 § 2, 2021)

6.77.120 Application—Information and fees required.

A. An application for an entertainment transportation vehicle driver's permit shall be filed with the MTLC on forms provided by the MTLC.

B. Such application shall be certified under oath and shall at a minimum contain the following information:

1. The name, residential address, telephone number and date of birth of the applicant. No applicant under eighteen years of age will be accepted.
2. The type(s) of vehicle(s) which the applicant will drive under the certificate.
3. The years of experience of the applicant in the transportation industry.
4. The educational background of the applicant.
5. A concise history of the applicant's employment.

C. The applicant shall provide copies of the following documents in order to submit his application:

1. A valid driver's license issued by one of the fifty states within the United States of America for the issuance or renewal of an entertainment transportation vehicle driver's permit corresponding with the type/classification of entertainment transportation vehicle to be operated (i.e., commercial driver license, for-hire endorsement, etc.).
2. A Social Security card or birth certificate, or if a resident alien, a current work permit or other valid United States Immigration and Customs Enforcement document.
3. A copy of a currently effective Tennessee commercial or other legal driver's license with a passenger (P) endorsement.

D. Each application shall be accompanied by an official driver record obtained no longer than thirty days previous to the date of application. All applicants are required to meet the following standards:

1. No convictions in the last five years for any offenses involving bodily injury or death and no convictions in the last three years for any of the following offenses not involving injury or death:
   a. Hit and run;
   b. Driving under the influence of an alcoholic beverage or drug;
   c. Reckless or careless driving.
2. For an initial permit, no more than three moving violations within the last three years and no more than two moving violations in the last year.
3. For a renewal permit, no more than four moving violations within the last three years and no more than two moving violations in the last year. (Ord. BL2022-1089 § 10, 2022; Ord. BL2021-911 § 2, 2021)

6.77.130 Fingerprint-based criminal background investigation.

A. All applicants for an entertainment transportation vehicle driver's permit must undergo a fingerprint-based identification and background check. The MTLC

staff shall collect background check fees from applicants and schedule them for fingerprinting. A background check report and a copy of the driving record (MVR) of the applicant, if any, shall be attached to the application and forwarded for consideration by the MTLC.

B. Any applicant shall, in addition to any disqualifications listed elsewhere in this chapter, be disqualified if the applicant:

1. Has been convicted, pled guilty, placed on probation or parole, pleaded nolo contendere, or been released from incarceration within a period of five years prior to the date of application for violation of any of the following criminal offenses under the laws of Tennessee, any other state or of the United States:

- Homicide,
- Rape,
- Aggravated assault,
- Kidnapping,
- Robbery,
- Felony theft,
- Burglary,
- Child sexual abuse,
- Domestic violence,
- Any sex-related offense,
- Leaving the scene of an accident,
- Criminal solicitation, or criminal attempt to commit any of above,
- Perjury or false swearing in making any statement under oath in connection with the application for a driver's permit, or
- The felony possession, sale or distribution of narcotic drugs or controlled substances.

2. If, at the time of application, the applicant is charged with any offenses in subsection (1) of this section, consideration of the application shall be deferred until entry of a plea, conviction, acquittal, dismissal, or other final disposition of the charges.

3. Has been convicted of or released from incarceration due to two or more felony offenses within the past seven years.

4. Has been convicted for a period of two years prior to the date of application of the violation of two or more sections of this Code or other ordinances governing the operation of entertainment transportation vehicles.

C. If the applicant fails to disclose any criminal conviction, except traffic citations, on the application for a permit, the application may be referred to the MTLC for consideration. (Ord. BL2021-911 § 2, 2021)

6.77.140 Application—Approval or disapproval.

The MTLC or its staff shall, upon the consideration of the application and any reports and certificates required to be attached thereto, approve or reject the application. Any applicant rejected by the MTLC staff may file an appeal within thirty days of denial and request an appearance before the MTLC. The appeal shall be heard by the MTLC at the next available MTLC meeting with the appellant appearing in-person for consideration of the application. (Ord. BL2021-911 § 2, 2021)

6.77.150 Issuance—Permit contents and display.

A. Upon approval of an application for an entertainment transportation vehicle driver's permit, the MTLC director shall issue a permit to the applicant, which shall bear the name, company affiliation and other information deemed necessary by the MTLC director.

B. Every driver shall at all times conspicuously display a permit either on the clothing of the driver's upper body or within the entertainment transportation vehicle. A driver shall allow the MTLC director, MTLC inspector, or a police officer to examine the permit upon request. (Ord. BL2022-1089 § 11, 2022; Ord. BL2021-911 § 2, 2021)

6.77.160 Unpermitted drivers.

A. If any person is found operating any entertainment transportation vehicle within the metropolitan area without a valid entertainment transportation vehicle driver's permit on behalf of any holder of a certificate of necessity and public convenience, the MTLC director may immediately take action to suspend or revoke the certificate.

B. A person whose entertainment transportation vehicle driver's permit is suspended shall not drive an entertainment transportation vehicle within the metropolitan area during the period of suspension. (Ord. BL2021-911 § 2, 2021)

6.77.170 New application after denial.

Upon denial of an application for a driver's permit, no new application shall be considered for a period of three months. (Ord. BL2021-911 § 2, 2021)

6.77.180 Expiration—Issuance and replacement fee.

A. Each entertainment transportation vehicle driver's permit shall be issued for a period of one year, or until March 31.

B. A permit may be issued to qualified applicants upon the payment of a fee established by the MTLC plus the costs of investigation. If the permit for the preceding year has been revoked, no new permit shall be issued without prior MTLC approval. A fee established by the

MTLC shall be charged for all replacement driver permits. Such fees shall be in addition to the cost of any investigation. (Ord. BL2021-911 § 2, 2021)

6.77.190 Hospitality training program—Participation required.

A. Every driver shall have attended a hospitality program approved by the MTLC prior to receiving an entertainment transportation vehicle driver's permit, and shall attend an approved hospitality training course or refresher course prior to applying for or renewal of an entertainment transportation vehicle driver's permit each year.

B. This course shall include updated information on any new MTLC regulations and safety requirements.

C. In addition to the driver, every employee of a certificate holder that rides on the entertainment transportation vehicle shall attend the hospitality training program required by this section prior to riding on an entertainment transportation vehicle as part of his/her employment. (Ord. BL2022-1089 § 12, 2022; Ord. BL2021-911 § 2, 2021)

6.77.200 Suspension, revocation, and appeal.

A. The MTLC director may suspend or revoke any applicant's certificate if the director determines that the applicant fails to comply with any requirement of this chapter. The director shall notify the applicant of any specific failure to comply with this chapter resulting in the suspension or revocation of their certificate and the applicant's right to an appeal by first class mail, express mail, overnight carrier, or personal service. If the MTLC director suspends or revokes a certificate, the applicant may appeal within ten days of such suspension or revocation to the MTLC for a hearing to determine if such suspension or revocation is justified. The decision of the MTLC shall be final, subject to any appropriate judicial review.

B. The MTLC director is hereby given authority to suspend any entertainment transportation vehicle driver's permit issued under this article for a driver's failure or refusal to comply with the provisions of this article. Such suspensions may not last for a period of more than thirty days. The MTLC director is also given authority to revoke any permit for failure to comply with the provisions of this article.

C. If a driver is charged in any court with a misdemeanor involving moral turpitude, or with any felony, or with driving while intoxicated or under the influence of drugs, or with violations of this article, the MTLC director is hereby given authority to suspend the driver's permit pending final disposition of the charges against them, and to revoke such permit upon conviction thereof.

D. The MTLC director may suspend or revoke an entertainment transportation vehicle driver's permit if the director determines that the permittee has engaged in conduct detrimental to the public safety.

E. The MTLC director may not suspend or revoke any permit unless the driver has received notice of the charges against them and has had the opportunity to present evidence on their behalf to the MTLC.

F. Any permittee whose license has been suspended or revoked by the MTLC director may file a written appeal with the MTLC within ten days. If an appeal is not made to the MTLC within ten days of the MTLC director's decision, the MTLC director's decision shall be final. A letter addressed to the MTLC and delivered to the MTLC office stating that an appeal from the decision of the MTLC director is desired shall perfect such appeal. The MTLC, as soon as practicable after receiving such notice of appeal, shall notify the applicant or permittee of the date and time of the hearing which shall be not less than five days after the mailing of such notice. After the hearing of the appeal, the MTLC shall sustain, modify or reverse the findings of the MTLC director, and shall notify the MTLC director and the applicant or permittee of its findings. The findings of the MTLC shall be final, subject to any applicable legal processes.

G. A driver whose permit is revoked may not reapply for ninety days from the date of revocation and will be treated as a new applicant. (Ord. BL2022-1089 § 13, 2022; Ord. BL2021-911 § 2, 2021)

6.77.210 Revocation of a valid driver's license.

An entertainment transportation vehicle driver's permit issued under this chapter shall be coterminous with the permittee's valid driver's license issued by one of the fifty states in the United States of America for the type/classification of entertainment transportation vehicle to be operated. Any time that a permittee's driver's license is suspended, revoked, or cancelled, their entertainment transportation vehicle driver's permit shall likewise be immediately suspended, revoked, or cancelled. The entertainment transportation vehicle driver's permit shall immediately be surrendered to the MTLC until such time as their driver's license is reinstated. (Ord. BL2021-911 § 2, 2021)

6.77.220 Conduct of drivers.

A driver shall at all times:

1. Act in a reasonable, prudent, safe, and courteous manner;

2. Not permit a person not possessing an entertainment transportation vehicle driver's permit to operate the entertainment transportation vehicle;

3. Not permit more passengers to be carried in an entertainment transportation vehicle than for which there is proper seating, and at no time shall the driver allow any passenger to ride in any area of the entertainment transportation vehicle not specifically designed or designated as a seat;

4. Not permit any passenger sixteen years of age or younger to ride in an entertainment transportation vehicle unaccompanied by an adult;

5. Not operate an entertainment transportation vehicle while under the influence of intoxicating beverages or drugs;

6. Not operate an entertainment transportation vehicle while possessing a lighted cigarette, cigar, or pipe at any time;

7. Observe and obey all state and local noise and traffic laws and regulations. (Amdt. 2 to Ord. BL2022-1089 § 14, 2022; Ord. BL2022-1089 § 14, 2022; Ord. BL2021-911 § 2, 2021)

6.77.230 Driver appearance.

A. Every entertainment transportation vehicle driver, while on duty, shall be dressed in compliance with those rules adopted by the MTLC.

B. All drivers must wear uniform attire with the entertainment transportation vehicle company's name and logo.

C. The MTLC shall have the authority to adopt rules specifically governing the type(s) of permitted and prohibited attire. (Ord. BL2022-1089 § 15, 2022; Ord. BL2021-911 § 2, 2021)

6.77.240 Alcohol in an entertainment transportation vehicle.

A. A certificate holder or driver commits an offense if he or she provides beer, ale, wine, or other alcoholic beverage to a passenger for a fee or as part of the passenger transport service.

B. A certificate holder or entertainment transportation vehicle driver commits a violation of this chapter if he or she provides or stocks any beer, ale, wine, or other alcoholic beverage in the entertainment transportation vehicle, except to the extent otherwise permitted by the beer board.

C. The consumption of beer, ale, wine, or other alcoholic beverages upon or within an entertainment transportation vehicle is strictly prohibited, except to the extent otherwise permitted by the MTLC and the metropolitan beer board.

D. It is unlawful for any person driving or in any way operating an entertainment transportation vehicle to knowingly allow a passenger or staff to consume alcoholic beverages in violation of beer board or MTLC rules and regulations. For purposes of this subsection, "knowingly allow" means the person has actual notice of or, through reasonable due diligence, should know that a passenger is consuming an alcoholic beverage or beer upon or within the entertainment transportation vehicle. (Amdt. 2 to Ord. BL2022-1089 § 16, 2022; Ord. BL2022-1089 § 16, 2022; Ord. BL2021-911 § 2, 2021)

6.77.250 Return of passengers' property.

A driver of an entertainment transportation vehicle shall immediately attempt to return to a passenger any property left by the passenger in the entertainment transportation vehicle. If unable to locate the passenger, the driver shall turn the property into the certificate holder's company office at the end of the driver's shift or at the first available opportunity. In such cases, the certificate holder shall make a good faith effort to locate the passenger, and, if not successful, hold the property in storage at its location for at least thirty days, unless otherwise directed by the director. (Ord. BL2021-911 § 2, 2021)

6.77.260 Compliance with provisions.

Every driver granted a permit under this article shall comply with all metropolitan government, state, and federal laws. Failure to do so may result in disciplinary actions including suspension and up to revocation of the entertainment transportation vehicle driver's permit. (Ord. BL2021-911 § 2, 2021)

Article III. Equipment and Operation

6.77.270 Vehicle permit required.

Each entertainment transportation vehicle must have a permit issued by the MTLC. The permit will identify each entertainment transportation vehicle by a unique number in accordance with rules and procedures established by the MTLC, and will be associated with the specific classification and by certificate holder. Permits are not transferable to other entertainment transportation vehicles or other certificate holders. For the purposes of this chapter, a transfer includes a change in control of the permittee or certificate holder. (Ord. BL2022-1089 § 17, 2022; Ord. BL2021-911 § 2, 2021)

6.77.280 Ownership and control of vehicles.

All entertainment transportation vehicles permitted under this chapter must be under the lawful control of a certificate holder demonstrated either by proof of owner-

ship or a copy of a valid lease agreement and must be under the direct control of a permitted driver while in operation or use. (Ord. BL2021-911 § 2, 2021)

6.77.290 Vehicle to display identification.

All entertainment transportation vehicles operated under the authority of this chapter shall be equipped with identification as prescribed by the MTLC in rules and regulations. (Ord. BL2021-911 § 2, 2021)

6.77.300 Vehicle requirements; safety standards.

A. To the fullest extent permitted by Tennessee and federal law, prior to the use and operation of any vehicle under the provisions of this chapter, the vehicle shall be thoroughly examined and inspected by the certificate holder or a third party in accordance with rules and regulations prescribed by the MTLC. These rules and regulations shall be promulgated to provide safe transportation and specify such safety equipment and regulatory devices as the MTLC shall deem necessary. When a certificate holder finds that a vehicle has met all the terms established by the MTLC, the holder shall certify this under oath to the MTLC director, who shall authorize a permit to be issued.

B. To the fullest extent permitted by Tennessee and federal law, every vehicle operating under this chapter is subject to random and periodic inspections to ensure the continued maintenance of safe operating conditions. A certificate holder shall make an entertainment vehicle available for inspection upon or prior to the expiration of the notice period provided for in the rules and regulations adopted by the MTLC, when ordered to do so by MTLC staff. If, upon inspection it is determined that an entertainment vehicle for hire is not in compliance with this chapter or MTLC rules, the MTLC staff shall order the vehicle to be removed from service or brought into compliance within a reasonable period of time and require it to be re-inspected.

C. Every vehicle operating under this chapter shall be kept in a clean and satisfactory condition, according to rules and regulations promulgated by the MTLC.

D. Every vehicle operating under this chapter must be equipped with adequate seating as determined by the MTLC.

E. To the fullest extent permitted by Tennessee and federal law, every vehicle operating under this chapter shall undergo an annual detailed mechanical inspection conducted by a mechanic, as reasonably approved by the MTLC director, and pursuant to the requirements of rules and regulations adopted by the MTLC. The records of these inspections must be maintained and made available to MTLC staff as provided by the rules and regulations adopted by the MTLC. The certificate holder shall certify under oath to the MTLC director compliance with this subsection.

F. The MTLC may, by rule, establish additional inspection requirements for entertainment transportation vehicles and other equipment used in the entertainment transportation vehicle service.

G. The MTLC shall have the authority to promulgate rules and regulations consistent with applicable law to ensure the safe operation of entertainment transportation vehicles. (Ord. BL2022-1089 § 18, 2022; Ord. BL2021-911 § 2, 2021)

6.77.310 Reserved.

6.77.320 Operating area.

Entertainment transportation vehicles shall operate upon the streets within the metropolitan area on routes or zones, and within hours of operation, established by the MTLC or its staff. Any deviation from these approved routes, zones, or hours of operation, except for deviations caused by traffic accidents, must be approved by the MTLC or its staff. Any approved deviation must be reported to the MTLC or the MTLC director staff prior to beginning of operations. For the purposes of this section, the term "operate" shall mean when the entertainment transportation vehicle is transporting passengers and does not include when the driver or employee is operating the transportation vehicle for service, repair, or when driving to or returning from its point of origin or final destination without passengers. (Ord. BL2022-1089 § 19, 2022; Ord. BL2021-911 § 2, 2021)

6.77.330 Records and reports.

A. Each holder shall maintain at a single location business records of its entertainment transportation vehicle business. The records must be maintained in a manner approved by the MTLC director and contain the following information:

1. An identification of the entertainment transportation vehicles operating each day;

2. An identification of the drivers operating the entertainment transportation vehicles each day and a statement of the hours each driver operated the vehicle each day; and

3. Any other information the MTLC director determines necessary for monitoring the activities, operations, service, and safety record of the licensee.

B. A certificate holder shall make its records available for inspection by the MTLC director, inspector, law enforcement officer or designated officials. (Ord. BL2021-911 § 2, 2021)

6.77.340 Accidents.

A. All accidents arising from or in connection with the operation of an entertainment transportation vehicle shall be reported within seventy-two hours from the time of occurrence to the MTLC director if the accident results in:

1. Death or bodily injury to any person, or

2. Damage to any vehicle, or to any property in an amount exceeding the sum of four hundred dollars.

B. A driver operating an entertainment transportation vehicle at the time of an accident involving bodily injury is required to report for a drug screen, within twenty-four hours from the time of occurrence, at a testing site approved by the MTLC. Failure to report for a screen shall result in revocation of the driver's permit.

C. An entertainment transportation vehicle damaged in an accident, but still operable without placing the driver or passengers at risk, must be repaired within two weeks of the accident or removed from operation until repaired and inspected. (Ord. BL2021-911 § 2, 2021)

6.77.350 Passengers—Receiving and discharging by drivers.

A. Drivers shall only receive and discharge passengers at designated staging areas/locations approved by the MTLC.

B. Drivers shall not allow additional passengers to board the entertainment transportation vehicle after the vehicle has left its fixed starting point. (Ord. BL2021-911 § 2, 2021)

6.77.360 Disposition of disorderly passengers.

Drivers shall act in a reasonable and professional manner in dealing with disorderly passengers. (Ord. BL2021-911 § 2, 2021)

6.77.370 Soliciting business.

No certificate holder or driver of an entertainment transportation vehicle shall offer any compensation of whatever form to any person or entity in exchange for the direction or recommendation of passengers to that entertainment transportation vehicle, provided that this section shall not prohibit certificate holders from advertising their entertainment transportation business. (Ord. BL2021-911 § 2, 2021)

6.77.380 Compliance with other laws.

It shall be a violation of this chapter for a certificate holder or driver to violate any other applicable federal, state or local law or regulation in offering or providing entertainment transportation vehicle services. (Ord. BL2021-911 § 2, 2021)

6.77.390 Enforcement.

A. The inspectors of the metropolitan government are authorized and are instructed to observe the conduct of holders of certificates and permits operating under this chapter. Upon discovering a violation of the provisions of this chapter, the inspector may either report the violation to the MTLC, which will order or take appropriate action, or issue a citation as authorized under Section 6.77.420.

B. In addition to the enforcement authority provided to inspectors in subsection A. of this section, other employees of NDOT tasked with such enforcement and officers of the Metropolitan Nashville Police Department shall have the authority to enforce this chapter. A police officer, upon observing a violation of this chapter or of any regulation or rule established by the MTLC or the MTLC director pursuant to this chapter, shall take necessary enforcement action to insure effective regulation of entertainment transportation vehicles. (Ord. BL2022-1089 § 20, 2022; Ord. BL2021-911 § 2, 2021)

6.77.400 Reserved.

6.77.410 Limitation of service due to weather conditions.

Entertainment transportation vehicles shall not receive passengers when weather conditions are sufficiently adverse or inclement so as to endanger passengers or the public. The MTLC, by rule, may adopt specific guidelines for the operation of entertainment transportation vehicles in inclement weather conditions. (Ord. BL2021-911 § 2, 2021)

Article IV. Violations—Civil Penalty Schedules

6.77.420 Violations—Penalties—Additional regulations.

A. All provisions of this chapter shall be governed by the penalties and procedures for general ordinance violations set forth in Section 1.01.030.

B. Notwithstanding any provision contained herein, the MTLC shall have the authority to enforce the provisions of this chapter.

C. The MTLC shall have the authority to promulgate, implement, and enforce additional rules and regulations pertaining to entertainment transportation vehicles, provided such rules and regulations are consistent with the provisions of this chapter. In developing these rules and regulations, the MTLC shall ensure safety, traffic flow, and compliance with existing noise ordinances.

D. Using a permitted service vehicle to increase capacity shall be grounds for immediate suspension of the certificate holder's permit. Use of a permitted service vehicle is limited to replacing an out of service permitted vehicle only. (Amdt. 2 to Ord. BL2022-1089 § 21, 2022; Ord. BL2022-1089 § 21, 2022; Ord. BL2021-911 § 2, 2021)

6.77.430 Severability.

If any provision or clause of this chapter or the application thereof to any person or circumstance is held to be unenforceable by a court of competent jurisdiction, such clause or provision and the remainder of this chapter shall remain effective and enforceable to the fullest extent allowed by law, and all clauses and provisions of this chapter are hereby declared to be severable. (Ord. BL2021-911 § 2, 2021)

Chapter 6.78

SEATED SIGHTSEEING VEHICLES

Sections:

6.78.010 Definitions.

Article I. Certificate of Public Convenience and Necessity

6.78.020 Required and term.
6.78.030 Findings—Issuance of certificate or additional permits.
6.78.040 Application—Information and fees required.
6.78.050 Issuance and denial—Fees.
6.78.060 Annual renewal.
6.78.070 Insurance required.
6.78.080 Suspension and revocation.

Article II. Vehicle and Driver Permits

6.78.090 Permit required—Violations and term.
6.78.100 Application—Information and fees required.
6.78.110 Fingerprint-based criminal background investigation.
6.78.120 Application—Approval or disapproval.
6.78.130 Issuance—Permit contents and display.
6.78.140 Unpermitted drivers.
6.78.150 New application after denial.
6.78.160 Expiration—Issuance and replacement fee.
6.78.170 Hospitality training program—Participation required.
6.78.180 Suspension, revocation, and appeal.
6.78.190 Revocation of a valid driver's license.
6.78.200 Conduct of drivers.
6.78.210 Driver appearance.
6.78.220 Operation regulations for seated sightseeing vehicle.
6.78.230 Return of passengers' property.
6.78.240 Compliance with provisions.

Article III. Equipment and Operation

6.78.250 Vehicle permit required.
6.78.260 Ownership and control of vehicles.
6.78.270 Vehicle to display identification.
6.78.280 Vehicle requirements; safety standards.
6.78.290 Records and reports.
6.78.300 Accidents.
6.78.310 Passengers—Receiving and discharging by drivers; designated stops.
6.78.320 Application for permit to operate between 4:00 p.m. and 6:00 p.m. in the Urban Core—Information and fees required.
6.78.330 Disposition of disorderly passengers.
6.78.340 Compliance with other laws.
6.78.350 Enforcement.
6.78.360 Limitation of service due to weather conditions.

Article IV. Violations—Civil Penalty Schedules

6.78.370 Violations—Penalties—Additional regulations.
6.78.380 Severability.

6.78.010 Definitions.

For purposes of this chapter:

"Certificate" means a certificate of public convenience and necessity, a license granted, upon application and approval, by the Metropolitan Transportation Licensing Commission ("MTLC") for the sole purpose of authorizing the certificate holder to provide transportation through a seated sightseeing vehicle. A certificate holder may hold one or more permits as defined under this section.

"Certificate holder" means a person, company, corporation or association which has applied for, and been granted, a certificate of public necessity and convenience.

"Change in control" means either: (i) a change in ownership such that fifty percent or more of the direct or indirect voting or economic interests in such permittee is transferred to a transferee; or (ii) a change in the power to direct or cause the direction of management and policy of the permittee is transferred to a transferee. For the purposes of this definition, "permittee" means the holder of a certificate or permit issued pursuant to this chapter and "transferee" means a person, entity, or group of people or entities acting in concert.

"Driver" means any individual who physically operates a seated sightseeing vehicle as a for-hire vehicle under this chapter. This person may share additional, company-related titles, such as owner, employee of the owner, holder or independent contractor.

"Driver permit" means a permit issued by the MTLC to drive and operate a seated sightseeing vehicle.

"For hire" means a transaction whereby any money, thing of value, charge tickets, surcharge, payment, pecuniary consideration or compensation, reward, donation, tip, or any other remuneration or profit is paid to, accepted by, or received by a driver, employee, agent, owner, or any other representative of a seated sightseeing vehicle in exchange for the temporary use by or for the transportation of a passenger, whether such is paid voluntarily or upon solicitation, demand, request, contract, agreement, or as a surcharge; or otherwise in conjunction with the purchase of any other services wherein the transportation is part of the services provided.

"Holder" means a person to whom a certificate of public convenience and necessity has been issued by the MTLC.

"Inspector(s)" means the inspector(s) for the MTLC.

"Metro" means the Metropolitan Government of Nashville and Davidson County.

"Metropolitan area" means the area that comprises Nashville and Davidson County.

"Metropolitan transportation licensing commission," also referred to as "MTLC" or "the commission," means the metropolitan transportation licensing commission as established by the Metropolitan Code.

"MTLC director" means the director/executive secretary of the MTLC, as employed by the Nashville Department of Transportation and Multimodal Infrastructure on behalf of the MTLC.

"Open container" means any container containing alcoholic beverages or beer, the contents of which are immediately capable of being consumed or the seal of which has been broken.

"Owner" means the person who holds the legal title of the seated sightseeing vehicle.

"Passenger" means any person on a seated sightseeing vehicle other than the driver and staff.

"Person" means any individual, partnership, corporation, association or public or private organization of any character.

"Permittee" means a holder of any permit issued under this chapter.

"Seated sightseeing vehicle" means any motor vehicle that is designed or constructed to accommodate and transport more than one passenger for hire, which consistently operates on one or more fixed routes, where all passengers are required to remain seated at all times while the vehicle is in operation, and where alcohol is never permitted or served on the vehicle. A "seated sightseeing vehicle" is considered "entertainment transportation" under Tenn. Code Ann. § 7-51-1008.

"Seated sightseeing vehicle permit" means a permit issued by the MTLC for a seated sightseeing vehicle to carry passengers.

"Seated sightseeing vehicle driver's permit" means a permit issued by the MTLC for a person to operate a seated sightseeing vehicle to carry passengers.

"Seated sightseeing vehicle stand" means a place alongside a street, or other public way, where designated stops and passenger pickups have been approved by the Director of the Nashville Department of Transportation and Multimodal Infrastructure, or his or her designee, and the traffic and parking commission.

"Solicit" means the distribution of flyers or other material, or an appeal by bell, horn, whistle, words, or gestures by a driver or his or her agent directed at individuals or groups for the purpose of attracting passengers for immediate hire.

"Traffic and parking commission" means the Metropolitan Traffic and Parking Commission as established by the Metropolitan Charter and Code of Laws.

"Urban core" means the area between and including Korean Veterans Boulevard and Church Street and 1st Avenue and 8th Avenue within the jurisdiction of the Metropolitan Government of Nashville and Davidson County. (Ord. BL2025-954 § 2, 2025)

Article I. Certificate of Public Convenience and Necessity

6.78.020 Required and term.

A. No seated sightseeing vehicle shall be used or operated on a for hire basis by any person in the territorial jurisdiction of the metropolitan government without an owner or operator having first obtained a certificate of public convenience and necessity. Each certificate shall be valid for one year and shall be subject to renewal pursuant to the provisions set forth in this article.

B. It shall be unlawful for any person to transport or offer to transport passengers in any seated sightseeing vehicle which does not have affixed to the front window of the seated sightseeing vehicle a valid permit issued through the MTLC.

C. No certificate issued pursuant to this chapter may be assigned, transferred, sold, or given from one person or entity to another without the express written approval of the MTLC upon the filing of an application for such a transfer. For the purposes of this chapter, a transfer includes a change in control of the certificate holder.

D. The MTLC shall track all certificates, and after the renewal period, if the certificate has not been renewed it shall be determined to be void. (Ord. BL2025-954 § 2, 2025)

6.78.030 Findings—Issuance of certificate or additional permits.

A. The MTLC must make an annual finding as to what number of seated sightseeing service providers and vehicles are required by the public convenience and necessity, in Nashville and Davidson County, before it may issue any new certificates of public convenience and necessity, renew any previously issued expiring certificates, or add any additional permitted vehicles to an existing certificate holder's permitted fleet. Further, the MTLC must find that the applicant is fit, willing, and able to provide such service and to conform to the provisions of this chapter and the rules promulgated by the MTLC, before the MTLC may issue a certificate of public convenience and necessity. The certificate shall state the name and address of the applicant, the number of vehicles authorized upon such certificate, and the date of issuance.

B. In making the above findings, the MTLC shall, at a minimum, take into consideration the number of seated sightseeing vehicles already in operation, whether existing service is adequate to meet the public need, whether adding additional seated sightseeing vehicles unnecessarily adds to traffic congestion, the character, experience, financial condition and responsibility of the applicant, and such other criteria as may be adopted by the MTLC in its rules. (Ord. BL2025-954 § 2, 2025)

6.78.040 Application—Information and fees required.

A. An application for a certificate of public convenience and necessity shall be filed with the MTLC. Forms will be provided by the MTLC and payment of a nonrefundable fee will be charged. The amount of the application fee shall be established by the MTLC based upon the cost of processing the application.

B. The application shall require the following information:

1. Name and address of applicant;

a. Sole-proprietor—Name and address of the owner.

b. Partnership—Names and addresses of all partners.

c. Corporation or association—Names and addresses of all the officers, directors, and members.

2. Business name (d/b/a), business address and telephone number if different from above;

3. A background check of each driver covering the ten years immediately preceding the date of application;

4. Names and addresses of two references as to the applicant's financial responsibility;

5. Prior experience of applicant in transport of passengers;

6. Number of vehicle permits requested, and copy of proof of ownership or other evidence of lawful control for each vehicle to be operated under the certificate;

7. Procedures for training drivers;

8. Rules and regulations governing driver appearance and conduct;

9. Disclosure of prior state law or Metropolitan Code violations pertaining to noise from motor vehicles, lewd conduct as part of a commercial business, or alcoholic beverage open container laws;

10. A copy of each driver's official motor vehicle report or equivalent form showing the driver's driving history for the past three years from all states within which the applicant has resided in the past three years;

11. Any additional information the applicant desires to include to aid in the determination of whether the requested certificate should be issued; and

12. Such further information as the MTLC may require.

C. An applicant will be ineligible for consideration if:

1. Any of the owners, partners, officers, directors, or members are under twenty-one years of age and/or the seated sightseeing vehicle business has no separate legal existence beyond a shareholder, owner, or partner who is under the age of twenty-one years of age;

2. Any of the owners, partners, officers, directors, or members has been convicted of, forfeited bond, pleaded guilty or nolo contendere to, or been released from incarceration for a felony, prostitution, assignation, obscenity, or any crime of a sexual nature in any jurisdiction within ten years immediately preceding the date of application; or has been convicted of, forfeited bond, or pleaded guilty or nolo contendere to multiple felonies.

3. Any of the owners, partners, officers, directors, or members has violated any portion of this chapter or Chapter 6.77 of the Metropolitan Code within five years immediately preceding the date of application.

4. Any portion of the application is incomplete or contains incorrect or untruthful information.

D. An applicant will be ineligible for consideration for a one-year period if any applicant, owner, partner, officer, director, or member has been found by a court of competent jurisdiction in violation of state law or Metropolitan Code provisions three or more times within the past three hundred sixty-five days. (Ord. BL2025-954 § 2, 2025)

6.78.050 Issuance and denial—Fees.

A. If the MTLC or the MTLC director determines that further seated sightseeing vehicles are required and the applicant is qualified, the MTLC or MTLC director may issue a certificate.

B. The MTLC shall adopt the criteria for determining the necessity for additional seated sightseeing vehicle certificates.

C. Any person whose application for a certificate is denied by the MTLC director may file a written appeal with the MTLC within thirty days of denial and request an appearance before the MTLC and appear in-person for consideration of the certificate application.

D. The certificate shall state the name, business address and telephone number of the applicant, and the date of expiration.

E. The MTLC will set a fee to be charged for the issuance of each approved seated sightseeing vehicle permit associated with the certificate. There shall be a separate fee for the company/certificate holder and additional separate permit fees required on a per vehicle basis. (Ord. BL2025-954 § 2, 2025)

6.78.060 Annual renewal.

A. All certificates issued under the provisions of this chapter shall expire April 30 of the year following the date on which the certificate was issued. All certificates may be renewed by the MTLC director for each successive year between April 1 and April 30 of each year, if the applicant meets all applicable standards for renewal as established by the MTLC, and if it has not been determined, pursuant to Section 6.78.030 above, that the number of seated sightseeing vehicles already in operation is so great as to be exceeding the public need and adding to traffic congestion. A renewal fee for each approved certificate and other licensing fees shall be charged at the annual renewal of the certificate.

B. All applicants for renewal must be current with all assessments and taxes due to the metropolitan government.

C. If a licensed seated sightseeing vehicle company or individual fails to renew prior to the end of the renewal period, the license shall expire and the renewal applicant shall be treated as a new applicant.

D. Within ninety days of the passage of this ordinance, any certificate holder that holds an entertainment transportation vehicle permit with a "seated sightseeing" designation, pursuant to Chapter 6.77, and that meets the definition of "seated sightseeing vehicle" as set forth in this Chapter, may forfeit their existing entertainment transportation vehicle permit(s) with a seated sightseeing vehicle designation to MTLC staff in exchange for a seated sightseeing vehicle certificate. Such seated sightseeing vehicle certificates will be valid until the date of the first seated sightseeing vehicle annual hearing following the passage of this ordinance. At the time of the first seated sightseeing vehicle annual hearing following the passage of this ordinance, no entertainment transportation vehicle permits with a seated sightseeing designation shall be renewed, and instead, all entertainment transportation vehicle permits with a "seated sightseeing" designation pursuant to Chapter 6.77 that were issued prior to May 1, 2024 shall be granted a seated sightseeing vehicle certificate by the MTLC in accordance with state law. Those certificate holders that hold an entertainment transportation vehicle permit with a "seated sightseeing" designation pursuant to Chapter 6.77 that either does not meet the definition of "seated sightseeing vehicle" under this chapter or was issued after May 1, 2024, shall retain their entertainment transportation vehicle permit with the seated sightseeing vehicle designation until the next annual hearing following the passage of this ordinance, at which time the MTLC will consider such certificate holder's application for renewal under Chapter 6.77. (Ord. BL2025-954 § 2, 2025)

6.78.070 Insurance required.

A. Before any certificate shall be issued by the commission director, or before the renewal of such certificate shall be granted, the applicant or association shall be required to file with its application an insurance policy and/or certificate of insurance with the MTLC director evidencing insurance coverage as required in this section.

B. Insurance coverage as provided in subsection (A) of this section means:

1. Holders of certificates of public convenience and necessity shall maintain commercial general (public) liability insurance, inclusive of contractual liability, in a minimum amount as determined by the MTLC in consultation with the Metropolitan Government Insurance and Claims Manager written on an occurrence basis. This insurance shall be issued by an insurance company qualified to do business in the state and naming the metropolitan government as an additional insured.

2. Such holders shall also maintain commercial automobile liability insurance that shall afford protection to any third-party sustaining injury or damage as a result of the negligent operation of any seated sightseeing or other motor vehicle affiliated with the company in minimum amounts and under such coverages as determined by the MTLC in consultation with the Metropolitan Government Insurance and Claims Manager. These policies shall be issued by an insurance company

qualified to do business in the state and naming the metropolitan government as an additional insured. These policies shall provide for the minimum coverage amounts (set as described above) to apply to each seated sightseeing vehicle for liability imposed by law for damages on account of bodily injuries, death or personal damages, other than injuries, death or property damages of the company or driver, in any one accident resulting from the ownership, maintenance or use of such seated sightseeing vehicle. The certificate of insurance shall also list the serial number or identification number of each seated sightseeing vehicle that is insured.

3. Any insurance policy issued in compliance with this article shall remain in place at least through the length of the licensing, and for any seated sightseeing vehicle insured thereunder such policies shall expressly provide that they may not be canceled, except after thirty days written notice to the commission director.

C. The operation of any seated sightseeing vehicle within the metropolitan area without having in force the public liability insurance policy as outlined in this section is hereby declared to be a material violation of this article, subjecting the owner and/or certificate holder to all applicable penalties provided in this article and this chapter.

D. Any changes in insurance must be reported to the commission immediately. (Ord. BL2025-954 § 2, 2025)

6.78.080 Suspension and revocation.

A. A certificate issued under the provisions of this chapter may be revoked, suspended, placed on probation, otherwise restricted, or not renewed by the MTLC if the holder thereof has:

1. Violated any of the provisions of this chapter or failed to comply with any rule or regulation established by the MTLC;

2. Violated any provision of this code or other ordinances of the metropolitan government or laws of the United States or the State of Tennessee, the violation of which reflects unfavorably on the fitness of the holder to offer transportation services, including but not limited to, violations for excessive noise or alcoholic beverage open containers;

3. Failed to pay assessments or taxes due to the metropolitan government; or

4. Made a misrepresentation or false statement when obtaining or renewing a certificate or additional permits, or transferring a certificate.

5. Notwithstanding the foregoing provisions of this section, entertainment transportation vehicle permits that were issued with a "seated sightseeing" designation under Chapter 6.77 prior to May 1, 2024, and that have been converted to seated sightseeing vehicle permits under this chapter, shall only be revoked for good cause shown in an administrative hearing, in accordance with state law.

B. Prior to any action to revoke, suspend, place on probation, otherwise restrict, or not renew a certificate, the holder shall be given notice to the address listed on their certificate of the proposed action to be taken and shall have an opportunity to be heard by the MTLC.

C. If the holder commits an act in violation of the criminal laws of the United States of America or state of Tennessee Code and the MTLC director determines that holder poses a threat to the public safety, the MTLC director may enact an emergency suspension of the holder's certificate to remain in effect until the holder has the opportunity to be heard by the MTLC at the next available meeting, but in no circumstance later than sixty days from the date of the emergency suspension. (Ord. BL2025-954 § 2, 2025)

Article II. Vehicle and Driver Permits

6.78.090 Permit required—Violations and term.

A. No person shall drive or otherwise operate a seated sightseeing vehicle engaged in the transportation of passengers unless he or she has a seated sightseeing vehicle driver's permit and a currently effective Tennessee commercial or other legal driver's license with a passenger (P) endorsement. To qualify for a permit, an applicant must comply with all of the requirements and stipulations of this chapter and any rules and regulations adopted by the MTLC.

B. A person commits a violation of this chapter if he or she operates a seated sightseeing vehicle in the Metro area without a seated sightseeing vehicle driver's permit issued by the MTLC.

C. A seated sightseeing vehicle certificate holder commits a violation of this chapter if it employs or otherwise allows a person to operate a seated sightseeing vehicle owned, controlled, or operated by the permittee unless the person has a driver's permit issued by the MTLC.

D. Each seated sightseeing vehicle permit and driver's permit shall be valid for one year and shall be subject to renewal pursuant to the provisions set forth in this article. (Ord. BL2025-954 § 2, 2025)

6.78.100 Application—Information and fees required.

A. An application for a seated sightseeing vehicle driver's permit shall be filed with the MTLC on forms provided by the MTLC.

B. Such application shall be certified under oath and shall at a minimum contain the following information:

1. The name, residential address, telephone number and date of birth of the applicant. No applicant under eighteen years of age will be accepted.

2. The type(s) of vehicle(s) which the applicant will drive under the certificate.

3. A concise history of the applicant's employment.

C. The applicant shall provide copies of the following documents in order to submit his application:

1. A valid driver's license issued by one of the fifty states within the United States of America for the issuance or renewal of a seated sightseeing vehicle driver's permit corresponding with the type/classification of seated sightseeing vehicle to be operated (i.e., commercial driver license, for-hire endorsement, etc.).

2. A Social Security card or birth certificate, or if a resident alien, a current work permit or other valid United States Immigration and Customs Enforcement document.

3. A copy of a currently effective Tennessee commercial or other legal driver's license with a passenger (P) endorsement.

D. Each application shall be accompanied by an official driver record obtained no longer than thirty days previous to the date of application. All applicants are required to meet the following standards:

1. No convictions in the last five years for any offenses involving bodily injury or death and no convictions in the last three years for any of the following offenses not involving injury or death:

a. Hit and run;

b. Driving under the influence of an alcoholic beverage or drug;

c. reckless or careless driving.

2. For an initial permit, no more than three moving violations within the last three years and no more than two moving violations in the last year.

3. For a renewal permit, no more than four moving violations within the last three years and no more than two moving violations in the last year. (Ord. BL2025-954 § 2, 2025)

6.78.110 Fingerprint-based criminal background investigation.

A. All applicants for a seated sightseeing vehicle driver's permit must undergo a fingerprint-based identification and background check. The MTLC staff shall collect background check fees from applicants and schedule them for fingerprinting. A background check report and a copy of the driving record (MVR) of the applicant, if any, shall be attached to the application and forwarded for consideration by the MTLC.

B. Any applicant shall, in addition to any disqualifications listed elsewhere in this chapter, be disqualified if the applicant:

1. Has been convicted, pled guilty, placed on probation or parole, pleaded nolo contendere, or been released from incarceration within a period of five years prior to the date of application for violation of any of the following criminal offenses under the laws of Tennessee, any other state or of the United States:

- Homicide,
- Rape,
- Aggravated assault,
- Kidnapping,
- Robbery,
- Felony theft,
- Burglary,
- Child sexual abuse,
- Domestic violence,
- Any sex-related offense,
- Leaving the scene of an accident,
- Criminal solicitation, or criminal attempt to commit any of above,
- Perjury or false swearing in making any statement under oath in connection with the application for a driver's permit, or
- The felony possession, sale or distribution of narcotic drugs or controlled substances.

2. If, at the time of application, the applicant is charged with any offenses in subsection (1) of this section, consideration of the application shall be deferred until entry of a plea, conviction, acquittal, dismissal, or other final disposition of the charges.

3. Has been convicted of or released from incarceration due to two or more felony offenses within the past seven years.

4. Has been convicted for a period of two years prior to the date of application of the violation of two or more sections of this Code or other ordinances governing the operation of seated sightseeing vehicles.

C. If the applicant fails to disclose any criminal conviction obtained in the past seven years, except traffic citations, on the application for a permit, the application may be referred to the MTLC for consideration. (Ord. BL2025-954 § 2, 2025)

6.78.120 Application—Approval or disapproval.

The MTLC or its staff shall, upon the consideration of the application and any reports and certificates required to be attached thereto, approve or reject the

application. Any applicant rejected by the MTLC staff may file an appeal within thirty days of denial and request an appearance before the MTLC. The appeal shall be heard by the MTLC at the next available MTLC meeting with the appellant appearing in-person for consideration of the application. (Ord. BL2025-954 § 2, 2025)

6.78.130 Issuance—Permit contents and display.

A. Upon approval of an application for a seated sightseeing vehicle driver's permit, the MTLC director shall issue a permit to the applicant, which shall bear the name, company affiliation and other information deemed necessary by the MTLC director.

B. Every driver shall at all times conspicuously display a permit either on the clothing of the driver's upper body or within the seated sightseeing vehicle. A driver shall allow the MTLC director, MTLC inspector, or a police officer to examine the permit upon request. (Ord. BL2025-954 § 2, 2025)

6.78.140 Unpermitted drivers.

A. If any person is found operating any seated sightseeing vehicle within the metropolitan area without a valid seated sightseeing vehicle driver's permit on behalf of any holder of a certificate of necessity and public convenience, the MTLC director may immediately take action to suspend or revoke the certificate.

B. A person whose seated sightseeing vehicle driver's permit is suspended shall not drive a seated sightseeing vehicle within the metropolitan area during the period of suspension. (Ord. BL2025-954 § 2, 2025)

6.78.150 New application after denial.

Upon denial of an application for a driver's permit, no new application shall be considered for a period of three months. (Ord. BL2025-954 § 2, 2025)

6.78.160 Expiration—Issuance and replacement fee.

A. Each seated sightseeing vehicle driver's permit shall be issued for a period of one year, or until March 31.

B. A permit may be issued to qualified applicants upon the payment of a fee established by the MTLC plus the costs of investigation. If the permit for the preceding year has been revoked, no new permit shall be issued without prior MTLC approval. A fee established by the MTLC shall be charged for all replacement driver permits. Such fees shall be in addition to the cost of any investigation. (Ord. BL2025-954 § 2, 2025)

6.78.170 Hospitality training program—Participation required.

A. Every driver shall have attended a hospitality program approved by the MTLC prior to receiving a seated sightseeing vehicle driver's permit, and shall attend an approved hospitality training course or refresher course prior to applying for or renewal of a seated sightseeing vehicle driver's permit each year.

B. This course shall include updated information on any new MTLC regulations and safety requirements.

C. In addition to the driver, every employee of a certificate holder that rides on the seated sightseeing vehicle shall attend the hospitality training program required by this section prior to riding on a seated sightseeing vehicle as part of his/her employment. (Ord. BL2025-954 § 2, 2025)

6.78.180 Suspension, revocation, and appeal.

A. The MTLC director may suspend or revoke any applicant's certificate if the director determines that the applicant fails to comply with any requirement of this chapter. The director shall notify the applicant of any specific failure to comply with this chapter resulting in the suspension or revocation of their certificate and the applicant's right to an appeal by first class mail, express mail, overnight carrier, or personal service. If the MTLC director suspends or revokes a certificate, the applicant may appeal within ten days of such suspension or revocation to the MTLC for a hearing to determine if such suspension or revocation is justified. The decision of the MTLC shall be final, subject to any appropriate judicial review.

B. The MTLC director is hereby given authority to suspend any seated sightseeing vehicle driver's permit issued under this article for a driver's failure or refusal to comply with the provisions of this article. Such suspensions may not last for a period of more than thirty days.

C. If a driver is charged in any court with a misdemeanor involving moral turpitude, or with any felony, or with driving while intoxicated or under the influence of drugs, or with violations of this article, the MTLC director is hereby given authority to suspend the driver's permit pending final disposition of the charges against them, and to revoke such permit upon conviction thereof.

D. The MTLC director may suspend or revoke a seated sightseeing vehicle driver's permit if the director determines that the permittee has engaged in conduct detrimental to the public safety, provided the driver has received notice of the charges against them and has had the opportunity to present evidence on their behalf to the MTLC.

E. Any permittee whose permit has been suspended or revoked by the MTLC director may file a written appeal with the MTLC within ten days. If an appeal is not made to the MTLC within ten days of the MTLC director's decision, the MTLC director's decision shall be final. A letter addressed to the MTLC and delivered to the MTLC office stating that an appeal from the decision of the MTLC director is desired shall perfect such appeal. The MTLC, as soon as practicable after receiving such notice of appeal, shall notify the applicant or permittee of the date and time of the hearing which shall be not less than five days after the mailing of such notice. After the hearing of the appeal, the MTLC shall sustain, modify or reverse the findings of the MTLC director, and shall notify the MTLC director and the applicant or permittee of its findings. The findings of the MTLC shall be final, subject to any applicable legal processes.

F. A driver whose permit is revoked may not reapply for ninety days from the date of revocation and will be treated as a new applicant. (Ord. BL2025-954 § 2, 2025)

6.78.190 Revocation of a valid driver's license.

A seated sightseeing vehicle driver's permit issued under this chapter shall be coterminous with the permittee's valid driver's license issued by one of the fifty states in the United States of America for the type/classification of seated sightseeing vehicle to be operated. Any time that a permittee's driver's license is suspended, revoked, or cancelled, their seated sightseeing vehicle driver's permit shall likewise be immediately suspended, revoked, or cancelled. The seated sightseeing vehicle driver's permit shall immediately be surrendered to the MTLC until such time as their driver's license is reinstated. (Ord. BL2025-954 § 2, 2025)

6.78.200 Conduct of drivers.

A driver shall at all times:

1. Act in a reasonable, prudent, safe, and courteous manner;

2. Not permit a person who does not possess a seated sightseeing vehicle driver's permit to operate the seated sightseeing vehicle;

3. Not permit more passengers to be carried in a seated sightseeing vehicle than for which there is proper seating, and at no time shall the driver allow any passenger to ride in any area of the seated sightseeing vehicle not specifically designed or designated as a seat;

4. Not operate a seated sightseeing vehicle while under the influence of intoxicating beverages or drugs;

5. Not operate a seated sightseeing vehicle while possessing a lighted cigarette, cigar, or pipe at any time;

6. Observe and obey all state and local noise and traffic laws and regulations;

7. Not permit any passenger to possess an open container or consume alcohol at any time; and

8. Not permit any passenger to stand while the seated sightseeing vehicle is in motion. (Ord. BL2025-954 § 2, 2025)

6.78.210 Driver appearance.

A. The MTLC shall have the authority to adopt rules specifically governing the type of permitted and prohibited driver attire, unless otherwise prohibited by law.

B. Every seated sightseeing vehicle driver, while on duty, shall be dressed in compliance with those rules adopted by the MTLC.

C. All drivers must wear uniform attire with the seated sightseeing vehicle company's name and/or logo, unless otherwise prohibited by law. (Ord. BL2025-954 § 2, 2025)

6.78.220 Operation regulations for seated sightseeing vehicle.

A. A certificate holder or seated sightseeing vehicle driver commits a violation of this chapter if he or she provides beer, ale, wine, or other alcoholic beverage to a passenger for a fee or as part of the passenger transport service.

B. A certificate holder or seated sightseeing vehicle driver commits a violation of this chapter if he or she provides or stocks any beer, ale, wine, or other alcoholic beverage in the seated sightseeing vehicle.

C. The consumption of beer, ale, wine, or other alcoholic beverages upon or within a seated sightseeing vehicle is strictly prohibited. The certificate holder shall make clear on any company website that promotes a seated sightseeing vehicle, at points of sale, and upon entry to a seated sightseeing vehicle that alcohol is prohibited on a seated sightseeing vehicle. Within sixty days of the passage of this ordinance, the MTLC shall review the websites and procedures of the certificate holder, and generate a report indicating compliance or lack thereof with this section. Thirty days following the issuance of such a report, noncompliance with this section shall be deemed a violation to be adjudicated by the MTLC in accordance with the MTLC Rules and Procedures.

D. It is unlawful for any person driving or in any way operating a seated sightseeing vehicle to knowingly allow a passenger or staff to consume alcoholic beverages within a seated sightseeing vehicle. For purposes of this subsection, "knowingly allow" means the driver or operator has actual notice of or, through reasonable due

diligence, should know that a passenger is consuming an alcoholic beverage or beer within a seated sightseeing vehicle.

E. Seated sightseeing vehicle passengers must remain seated at all times when the vehicle is in operation. The certificate holder shall make clear on any company website that promotes a seated sightseeing vehicle, at points of sale, and upon entry to the seated sightseeing vehicle that passengers are to remain seated at all times the vehicle is in operation. Drivers shall ensure that passengers remain seated while the vehicle is in operation.

F. Seated sightseeing vehicles shall be required to operate on a fixed route or schedule, which has been pre-approved by the director of the MTLC and the chief traffic engineer of the Nashville Department of Transportation and Multimodal Infrastructure, or his or her designee, within the boundaries of the Metropolitan Government of Nashville and Davidson County, between the hours of 8:00 a.m. and 11:00 p.m. No seated sightseeing vehicle may operate in the Urban Core during the hours of 4:00 p.m. to 6:00 p.m., except as permitted by Section 6.78.320. Approval required under this section for fixed routes and schedules shall not be unreasonably withheld, conditioned, or delayed. (Ord. BL2025-954 § 2, 2025)

6.78.230 Return of passengers' property.

A driver of a seated sightseeing vehicle shall immediately attempt to return to a passenger any property left by the passenger in the seated sightseeing vehicle. If unable to locate the passenger, the driver shall turn the property into the certificate holder's company office at the end of the driver's shift or at the first available opportunity. In such cases, the certificate holder shall make a good faith effort to locate the passenger, and, if not successful, hold the property in storage at its location for at least thirty days, unless otherwise directed by the director. (Ord. BL2025-954 § 2, 2025)

6.78.240 Compliance with provisions.

Every driver granted a permit under this article shall comply with all metropolitan government, state, and federal laws. Failure to do so may result in disciplinary actions including suspension and up to revocation of the seated sightseeing vehicle driver's permit. (Ord. BL2025-954 § 2, 2025)

Article III. Equipment and Operation

6.78.250 Vehicle permit required.

Each seated sightseeing vehicle must have a vehicle permit issued by the MTLC. The vehicle permit will identify each seated sightseeing vehicle by a unique number in accordance with rules and procedures established by the MTLC, and will be associated with the specific classification and by certificate holder. Seated sightseeing vehicle permits shall be renewed annually in accordance with this chapter and Tenn. Code Ann. § 7-51-1008. Permits are not transferable to other seated sightseeing vehicles or other certificate holders. For the purposes of this chapter, a transfer includes a change in control of the permittee or certificate holder. (Ord. BL2025-954 § 2, 2025)

6.78.260 Ownership and control of vehicles.

All seated sightseeing vehicles permitted under this chapter must be under the lawful control of a certificate holder demonstrated either by proof of ownership or a copy of a valid lease agreement and must be under the direct control of a permitted driver while in operation or use. (Ord. BL2025-954 § 2, 2025)

6.78.270 Vehicle to display identification.

All seated sightseeing vehicles operated under the authority of this chapter shall be equipped with identification as prescribed by the MTLC in rules and regulations. (Ord. BL2025-954 § 2, 2025)

6.78.280 Vehicle requirements; safety standards.

A. To the fullest extent permitted by Tennessee and federal law, prior to the use and operation of any vehicle under the provisions of this chapter, the vehicle shall be thoroughly examined and inspected by the certificate holder or a third party in accordance with rules and regulations prescribed by the MTLC. These rules and regulations shall be promulgated to provide safe transportation and specify such safety equipment and regulatory devices as the MTLC shall deem necessary. When a certificate holder finds that a vehicle has met all the terms established by the MTLC, the holder shall certify this under oath to the MTLC director, who shall authorize a permit to be issued.

B. To the fullest extent permitted by Tennessee and federal law, every vehicle operating under this chapter is subject to random and periodic inspections to ensure the continued maintenance of safe operating conditions. A certificate holder shall make a seated sightseeing vehicle available for inspection upon or prior to the expiration of the notice period provided for in the rules and regulations adopted by the MTLC, when ordered to do so by MTLC staff. If, upon inspection it is determined that a seated sightseeing vehicle for hire is not in compliance with this chapter or MTLC rules, the MTLC staff shall

order the vehicle to be removed from service or brought into compliance within a reasonable period of time and require it to be re-inspected.

C. Every vehicle operating under this chapter shall be kept in a clean and satisfactory condition, according to rules and regulations promulgated by the MTLC.

D. Every vehicle operating under this chapter must be equipped with adequate seating as determined by the MTLC.

E. To the fullest extent permitted by Tennessee and federal law, every vehicle operating under this chapter shall undergo an annual detailed mechanical inspection conducted by a mechanic, as reasonably approved by the MTLC director, and pursuant to the requirements of rules and regulations adopted by the MTLC. The records of these inspections must be maintained and made available to MTLC staff as provided by the rules and regulations adopted by the MTLC. The certificate holder shall certify under oath to the MTLC director compliance with this subsection.

F. The MTLC may, by rule, establish additional inspection requirements for seated sightseeing vehicles and other equipment used in the seated sightseeing vehicle service.

G. The MTLC shall have the authority to promulgate rules and regulations consistent with applicable law to ensure the safe operation of seated sightseeing vehicles. (Ord. BL2025-954 § 2, 2025)

6.78.290 Records and reports.

A. Each certificate holder shall maintain business records of its seated sightseeing vehicle business at a single location. The records must be maintained in a manner approved by the MTLC director and contain the following information:

1. An identification of the seated sightseeing vehicles operating each day;

2. An identification of the drivers operating the seated sightseeing vehicles each day and a statement of the hours each driver operated the vehicle each day; and

3. Any other information the MTLC director determines necessary for monitoring the activities, operations, service, and safety record of the licensee.

B. A certificate holder shall make its records available for inspection by the MTLC (Ord. BL2025-954 § 2, 2025)

6.78.300 Accidents.

A. All accidents arising from or in connection with the operation of a seated sightseeing vehicle shall be reported within seventy-two hours from the time of occurrence to the MTLC director if the accident results in:

1. Death or bodily injury to any person, or

2. Damage to any vehicle, or to any property in an amount exceeding the sum of five thousand dollars.

B. A driver operating a seated sightseeing vehicle at the time of an accident involving bodily injury is required to report for a drug screen, within twenty-four hours from the time of occurrence, at a testing site approved by the MTLC. Failure to report for a screen shall result in revocation of the driver's permit.

C. A seated sightseeing vehicle damaged in an accident, but still operable without placing the driver or passengers at risk, must be repaired within two weeks of the accident or removed from operation until repaired and inspected. (Ord. BL2025-954 § 2, 2025)

6.78.310 Passengers—Receiving and discharging by drivers; designated stops.

A. Drivers shall receive and discharge passengers at designated seated sightseeing vehicle stands. Locations of seated sightseeing vehicle stands must be pre-approved by the Director of the Nashville Department of Transportation and Multimodal Infrastructure ("NDOT"), or his/her designee, and the traffic and parking commission.

B. Within thirty days of the passage of this ordinance, certificate holders with seated sightseeing vehicle stands must provide the director of NDOT, or his or her designee, with maps showing the location of such existing stands. Prior to the date of the first seated sightseeing vehicle annual hearing following the passage of this ordinance, the director of NDOT, or his/her designee, shall provide a report to the traffic and parking commission of all existing seated sightseeing stands in operation, along with a recommendation for keeping or removing such stands. The recommendations made in this report shall be based on criteria including, but not limited to, traffic patterns, public safety, and operational inefficiencies. The traffic and parking commission shall approve or disapprove these locations at its next regularly scheduled meeting following the completion of the report.

C. Seated sightseeing vehicles may stop at an approved seated sightseeing vehicle stand for no more than five minutes unless extenuating circumstances require more time. In consultation with and the preapproval of the director of the NDOT, or his/her designee, and subject to the approval of the traffic and parking commission, a certificate holder may designate an approved stand that is located outside of the Urban Core as the certificate holder's home stand for the initial unloading and loading of passengers. The initial unloading and loading of passengers at a home stand may take longer than ten minutes. (Ord. BL2025-954 § 2, 2025)

6.78.320 Application for permit to operate between 4:00 p.m. and 6:00 p.m. in the Urban Core—Information and fees required.

A. No seated sightseeing vehicle shall operate between the hours of 4:00 p.m. and 6:00 p.m. in the Urban Core unless the certificate holder obtains a permit from the MTLC to operate during those hours.

B. A seated sightseeing vehicle certificate holder may apply for a permit to operate in the Urban Core between the hours of 4:00 p.m. and 6:00 p.m., Monday through Friday.

C. An application for a permit to operate a seated sightseeing vehicle between the hours of 4:00 p.m. and 6:00 p.m. in the Urban Core, Monday through Friday, shall be filed with the MTLC on forms provided by the MTLC.

D. Such application shall be certified under oath and shall at a minimum contain the following information:

1. A traffic study performed by an engineer who is licensed in the state of Tennessee with experience in performing such studies. The engineer and/or engineering firm and the methodology to be used in the traffic study must be pre-approved by the Nashville Department of Transportation and Multimodal Infrastructure's Chief Traffic Engineer, or his/her designee. The traffic study must demonstrate that the relevant seated sightseeing vehicle(s) travels at the posted speed limit or maintains speed to keep up with the flow of traffic. To operate between 4:00 p.m. to 6:00 p.m. in the Urban Core, the vehicle must maintain speed to keep up with the flow of traffic at all times. If an applicant's traffic study shows that the relevant seated sightseeing vehicle is unable to travel at the speed limit or maintain speeds to keep up with the flow of traffic, the application for a 4:00 p.m. to 6:00 p.m. permit will be denied. Any traffic study approved by the Nashville Department of Transportation and Multimodal Infrastructure's Chief Traffic Engineer, or his/her designee, prior to the passage of this ordinance shall be deemed to satisfy this requirement; and

2. Any seated sightseeing vehicle certificate holder shall certify that they:

(i) Operate on pre-approved fixed routes approved by the director of the MTLC and NDOT's chief engineer;

(ii) Allow ticketed passengers to freely board and disembark at any designated stop between 4:00 p.m. and 6:00 p.m. without requiring advance notice;

(iii) Maintaining a consistent schedule and frequency of service that facilitates point-to-point circulation throughout the Urban Core;

(iv) Require passengers to remain seated at all times while the vehicle is in operation;

(v) Prohibit alcohol service and consumption on the vehicle; and,

(vi) Ensure that a majority of the route is outside of the Urban Core.

3. A copy of a fixed route that has been pre-approved by the director of the MTLC and NDOT's chief engineer. Any seated sightseeing vehicle certificate holder that has been approved to operate between 4:00 p.m. and 6:00 p.m. in the Urban Core shall operate on such pre-approved fixed route and shall publicly list the pre-approved fixed route online and at the point of sale ; and,

4. Payment of a non-refundable fee. The amount of the application fee shall be established by the MTLC based upon the cost of processing the application.

E. The MTLC, or its staff shall, upon the consideration of the application and any reports and certificates required to be attached thereto, approve or reject the application. Approval required under this section for fixed routes and schedules shall not be unreasonably withheld, conditioned, or delayed. Any applicant rejected by MTLC staff may file an appeal within thirty days of denial and request an appearance before the MTLC. The appeal shall be heard by the MTLC at the next available MTLC meeting with the appellant appearing in person for consideration of the application.

F. Any seated sightseeing vehicle certificate holder issued a permit to operate between 4:00 p.m. and 6:00 p.m. in the Urban Core shall comply with the following requirements and regulations as well as any requirements or regulations established by the MTLC related to this permit, including but not limited to:

(i) pre-approved fixed routes;

(ii) allowing ticketed passengers to freely board and disembark at any designated stop between 4:00 p.m. and 6:00 p.m. without requiring advance notice;

(iii) maintaining a consistent schedule and frequency of service that facilitates point-to-point circulation throughout the Urban Core;

(iv) requiring passengers to remain seated at all times while the vehicle is in operation;

(v) prohibiting alcohol service and consumption on the vehicle; and,

(vi) ensuring that a majority of the route is outside of the Urban Core.

G. Any seated sightseeing vehicle certificate holder issued a permit to operate between 4:00 p.m. and 6:00 p.m. in the Urban Core must conspicuously display such a permit on the vehicle in a location to be determined by the director of the MTLC, in accordance with the MTLC

Rules and Procedures. A driver shall allow the MTLC director, MTLC inspector, or a police officer to examine the permit upon request.

H. The MTLC shall have the authority to promulgate, implement, and enforce additional rules and regulations pertaining to the permit for the operation of seated sightseeing vehicles between 4:00 p.m. and 6:00 p.m. in the Urban Core.

I. Operating a seated sightseeing vehicle in the Urban Core between 4:00 p.m. and 6:00 p.m. without a permit do to so shall be considered a material violation. Any certificate holder found by the MTLC following a hearing to be operating a seated sightseeing vehicle in the Urban Core between 4:00 p.m. and 6:00 p.m. without a permit to do so shall be subject to disciplinary action including probation, suspension or revocation of that certificate holder's seated sightseeing vehicle permit at the discretion of the MTLC following a hearing. (Ord. BL2025-954 § 2, 2025)

6.78.330 Disposition of disorderly passengers.

Drivers shall act in a reasonable and professional manner in dealing with disorderly passengers. (Ord. BL2025-954 § 2, 2025)

6.78.340 Compliance with other laws.

It shall be a violation of this chapter for a certificate holder or driver to violate any other applicable federal, state or local law or regulation in offering or providing seated sightseeing vehicle services. (Ord. BL2025-954 § 2, 2025)

6.78.350 Enforcement.

A. The inspectors of the metropolitan government are authorized and are instructed to observe the conduct of holders of certificates and permits operating under this chapter. Upon discovering a violation of the provisions of this chapter, the inspector may either report the violation to the MTLC, which will order or take appropriate action, or issue a citation as authorized under Section 6.78.390.

B. In addition to the enforcement authority provided to inspectors in subsection A. of this section, other employees of the Nashville Department of Transportation and Multimodal Infrastructure tasked with such enforcement and officers of the Metropolitan Nashville Police Department shall have the authority to enforce this chapter. A police officer, upon observing a violation of this chapter or of any regulation or rule established by the MTLC or the MTLC director pursuant to this chapter, shall take necessary enforcement action to ensure effective regulation of seated sightseeing vehicles. (Ord. BL2025-954 § 2, 2025)

6.78.360 Limitation of service due to weather conditions.

Seated sightseeing vehicles shall not receive passengers when weather conditions are sufficiently adverse or inclement so as to endanger passengers or the public. The MTLC, by rule, may adopt specific guidelines for the operation of seated sightseeing vehicles in inclement weather conditions. (Ord. BL2025-954 § 2, 2025)

Article IV. Violations—Civil Penalty Schedules

6.78.370 Violations—Penalties—Additional regulations.

A. All provisions of this chapter shall be governed by the penalties and procedures for general ordinance violations set forth in Section 1.01.030.

B. Notwithstanding any provision contained herein, the MTLC shall have the authority to enforce the provisions of this chapter.

C. The MTLC shall have the authority to promulgate, implement, and enforce additional rules and regulations pertaining to seated sightseeing vehicles, provided such rules and regulations are consistent with the provisions of this chapter. In developing these rules and regulations, the MTLC shall ensure safety, traffic flow, and compliance with existing noise ordinances.

D. Using a permitted service vehicle to increase capacity shall be grounds for immediate suspension of the certificate holder's permit. Use of a permitted service vehicle is limited to replacing an out of service permitted vehicle only.

E. Not keeping up with the speed of traffic shall be considered a violation of this chapter. (Ord. BL2025-954 § 2, 2025)

6.78.380 Severability.

If any provision or clause of this chapter or the application thereof to any person or circumstance is held to be unenforceable by a court of competent jurisdiction, such clause or provision and the remainder of this chapter shall remain effective and enforceable to the fullest extent allowed by law, and all clauses and provisions of this chapter are hereby declared to be severable. (Ord. BL2025-954 § 2, 2025)

Chapter 6.80

WRECKER AND TOWING SERVICES

Sections:

6.80.010 Definitions.
6.80.020 Purpose and intent of provisions.
6.80.040 Assistance in enforcement by police officers.

Article I. License for Operation

6.80.110 License required to provide wrecker service.
6.80.120 Applications—Conditions.
6.80.130 Making false statement—Power not to grant application.
6.80.140 Liability insurance required.
6.80.145 Liability insurance required—Emergency wrecker service and nonconsent tows.
6.80.150 License—Issuance and contents.
6.80.160 License—Fees, expiration, transfer and display.
6.80.165 Annual renewal.
6.80.170 Nonconsent tows.
6.80.175 Police department impound lot notification requirements.
6.80.185 Vehicle tow service requirements and records.
6.80.190 Payment of fee.
6.80.195 Signage—Unpaid parking violations.

Article II. Permits for Wreckers

6.80.210 Permit required for wreckers.
6.80.220 Issuance—Contents.
6.80.230 Wrecker permit—Fees, transfer, expiration and display.

Article III. Drivers, Driver Helpers and Employees

6.80.310 Driver's permit required for drivers and driver helpers.
6.80.320 Licensee responsibilities—Compliance required.
6.80.330 Driver's permit—Fees, transfers, expiration and display.
6.80.340 Annual renewal.

Article IV. Equipment and Operation

6.80.410 Information required on vehicle.
6.80.415 Contracting for service with metropolitan government.
6.80.420 Inspection and maintenance of vehicles—Compliance required.
6.80.425 Minimum equipment required.
6.80.430 Operating records.
6.80.435 Receipts.
6.80.440 Disposition of revenue.
6.80.445 Daily manifests.
6.80.450 Prohibited acts.
6.80.452 Towing of unauthorized vehicles.
6.80.455 Wrecker booms.
6.80.460 Violations and amount of fines.

Article V. Emergency Wrecker Service

6.80.510 Emergency situations—Purpose.
6.80.515 License required to provide emergency wrecker service.
6.80.520 Application—Conditions.
6.80.525 License—Issuance and contents.
6.80.530 Liability insurance required.
6.80.535 License—Fees, expiration, transfer and display.
6.80.540 Licensees to provide service.
6.80.545 Service zones.
6.80.550 Fees charged.
6.80.555 Rate card—Display.
6.80.560 Wrecker driver—Duty to remove accident debris.
6.80.565 Accident reports.
6.80.570 Towing place designated.
6.80.575 Storage facility requirements.
6.80.580 Prohibited acts.
6.80.585 Penalties for violations.

Article VI. Hearings

6.80.610 Hearing for applicant for license.
6.80.620 Hearing before suspension, revocation or probation and after refusal to renew license or permit.

6.80.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Cruising" means the driving of a wrecker on the streets, alleys, roads, highways and thoroughfares within

the area of the metropolitan government in a fashion or manner calculated for the purpose of soliciting business.

"Driver" means any person driving a wrecker on the streets, alleys, roads, highways and thoroughfares within the area of the metropolitan government.

"Driver helper" means any person riding with a driver or assisting him in the operation of the wrecker on the streets, alleys, roads, highways and thoroughfares within the area of the metropolitan government.

"Driver's permit" means a permit required and issued by the transportation licensing commission to a driver or driver helper in order to drive or ride in a wrecker on the streets, alleys, roads, highways or thoroughfares within the area of the metropolitan government.

"Emergency wrecker service" means the removal of motor vehicles from the streets, alleys, roads, highways and thoroughfares within the area of the metropolitan government when there is an emergency situation as defined by Section 6.80.510.

"License" means a license issued by the transportation licensing commission authorizing the holder thereof to engage in the business of towing, transporting, conveying or removal of vehicles from one point to another within the area of the metropolitan government. A license can either authorize the holder thereof to engage in the business of providing wrecker services or emergency wrecker services.

"Nonconsent tow" or "nonconsent towing" is towing without the prior consent or authorization of the owner or operator of the vehicle to be towed. Typically, it is categorized as police or trespass towing.

"Rate card" means a card issued by the transportation licensing commission for display in each emergency wrecker which contains the mandatory maximum fees or charges then in effect.

"Rates and charges" mean any charges assessed for transporting, towing, conveying or storing a vehicle by an emergency wrecker service.

"Transportation licensing commission" means the transportation licensing commission of the metropolitan government created and existing by virtue of the Metropolitan Code of Laws, Sections 2.100.010 through 2.100.060 and is referred to in this chapter as the "commission."

"Unauthorized vehicle" means a vehicle parked on private property without the consent of the owner of the property or his agent or the lessee of the property.

"Wrecker" means a motor vehicle constructed on a truck chassis with lifting devices operated by mechanical power and employed or used for the purpose of towing, transporting, conveying or removing any and all kinds of vehicles which are unable to be or actually are not operated under their own power.

"Wrecker permit" means a permit required and issued by the commission to a licensee for each wrecker operated by the licensee under the authority of a license.

"Wrecker service" means the towing, transporting, conveying or removal of vehicles from one point to another within the area of the metropolitan government. (Ord. BL2000-247 §§ 1, 2, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.020 Purpose and intent of provisions.

It is declared to be the purpose and intent of this chapter that all wreckers, towing services and wrecker services doing business within the area of the metropolitan government be licensed and required to have adequate insurance coverage in force as set out in this chapter for the protection and welfare of the public. The provisions of this chapter shall not apply to a wrecker service located outside the area of the metropolitan government and which occasionally passes through or delivers vehicles within the area of the metropolitan government, unless such wrecker service picks up or delivers such vehicles within the area of the metropolitan government more than five times within any thirty-day period. Or unless the license or permit of such wrecker service, wrecker vehicle or wrecker driver has been revoked by the metropolitan transportation licensing commission; or unless the wrecker service consists of any of the owners or partners, or immediate family members of any owner or partner, of any company or firm, the license of which has been revoked by the metropolitan transportation licensing commission. (Ord. BL2010-621 § 1, 2010; Ord. BL2007-1547 § 1, 2007; Ord. 96-612 § 1(part), 1996)

6.80.040 Assistance in enforcement by police officers.

Officers of the department of metropolitan police shall have authority to enforce this chapter. A police officer, upon observing a violation of this chapter or of any regulation established by the director pursuant to this chapter, shall take necessary enforcement action to insure effective regulation of vehicle tow services and vehicle storage facilities. (§ (1) of Amdt. 1 to Ord. BL2000-247, 4/18/00; Ord. BL2000 § 3, 2000)

Article I. License for Operation

6.80.110 License required to provide wrecker service.

No person shall engage in the business of providing wrecker services within the area of the metropolitan government without first obtaining and keeping in force a license from the commission to operate a wrecker

service as set out in Section 6.80.150 or a license to operate an emergency wrecker service as set out in Section 6.80.525. (Ord. 96-612 § 1 (part), 1996)

6.80.120 Applications—Conditions.

A. Any person desiring to engage in the business of providing wrecker services within the area of the metropolitan government shall make application to the commission, which application shall be upon forms to be adopted and provided by the commission. The completed application must contain all the information required by such form and must be verified under oath.

B. The form to be adopted and provided by the commission shall require such information as the commission determines to be necessary and proper, including, but not limited to, the following:

1. The full name and address of the person, firm or corporation desiring to obtain a license and whether he is the owner, lessee or bailee of the proposed towing or wrecker operation;

2. A description of each wrecker including the make, model, year of manufacture, Tennessee license number for the current year, motor and chassis number and the length of time each wrecker has been in use. No license authorized hereunder shall be issued or become effective until the applicant has furnished the commission an application which identifies each wrecker to be used in the proposed towing and wrecker operation;

3. If the applicant intends to use the wrecker of another person or licensee on a part-time or full-time basis, that fact must also be stated;

4. The location and description of the place and premises from which the applicant intends to operate a wrecker service;

5. The names and addresses of at least two references as to the applicant's financial responsibility;

6. That the applicant is of good moral character and is ready, willing and able to comply with all the laws of the metropolitan government, the State of Tennessee, the United States and the rules and regulations of the commission;

7. That the applicant will list with the commission the names, home addresses and ages of all employees to be used or employed by the applicant in the business of providing a wrecker service, with the exception of part-time or emergency employees whose names will be furnished once a month. The applicant will update the list upon each renewal of his license;

8. That the applicant will set forth and describe the available space where the applicant intends to properly accommodate and protect all vehicles to be towed, transported or otherwise removed;

9. That the applicant will take out and maintain in full force and effect such policies of insurance as are herein required;

10. The applicant will comply with the mandatory rates and charges as herein provided and as may hereafter be adopted by the commission for all nonconsent tows. (§ (2) of Amdt. 1 to Ord. BL2000-247, 4/18/00; Ord. BL2000-247 § 4, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.130 Making false statement—Power not to grant application.

Any person making a false statement in any application required by the commission shall forfeit his license or permit and shall not be eligible to receive or hold a license or permit from the commission for a period of ten years. The commission shall have the power to not issue any license or permit when it finds that such issuance would interfere with the public health, safety and welfare of this community. (Ord. 96-612 § 1 (part), 1996)

6.80.140 Liability insurance required.

A. No license to operate a wrecker service shall be issued, become effective or continue in force and effect unless there is in full force and effect a liability insurance policy covering the licensee and his towing and wrecker operation with not less than a three hundred thousand dollar single limit. Such liability insurance policy shall be with an insurance company authorized to do business in Tennessee and approved by the commission and shall be filed with the secretary of the commission.

B. In addition to the requirements in subsection A of this section, the applicant for a license, prior to the issuance and effective date thereof, shall take out and maintain during the term of the license a policy of garage keeper's legal liability insurance covering fire, theft, explosion and collision in an amount of not less than fifty thousand dollars.

C. The liability insurance policies required in this section shall name the metropolitan government as an additional insured.

D. Those licensed to operate a wrecker service shall comply with the insurance requirements contained in Section 6.80.145 if they make nonconsent tows. (Ord. BL2000-247 § 5 (part), 2000; Ord. 96-612 § 1 (part), 1996)

6.80.145 Liability insurance required—Emergency wrecker service and nonconsent tows.

A. No license to operate an emergency wrecker service shall be issued, become effective or continue in force and effect unless there is in full force and effect a

liability insurance policy covering the licensee and his towing and wrecker operation with not less than a five hundred thousand dollar single limit. Such liability insurance policy shall be with an insurance company authorized to do business in Tennessee and approved by the commission and shall be filed with the secretary of the commission.

B. In addition to the requirements in subsection A of this section, the applicant for a license, prior to the issuance and effective date thereof, shall take out and maintain during the term of the license a policy of garage keeper's legal liability insurance covering fire, theft, explosion and collision in an amount not less than one hundred thousand dollars.

C. The liability insurance policies required in this section shall name the metropolitan government as an additional insured.

D. Those licensed to operate a wrecker service shall comply with the insurance requirements contained in this section if they make nonconsent tows. (Ord. BL2000-247 § 5 (part), 2000; Ord. 96-612 § 1 (part), 1996)

6.80.150 License—Issuance and contents.

A. If after the hearing provided for in Section 6.80.610, the commission finds upon examination that the applicant is capable, willing and qualified to provide a wrecker service and can conform to the laws of the metropolitan government, the State of Tennessee, the United States and the rules and regulations of the commission; then, the commission may grant and issue to such applicant a license to operate a wrecker service; otherwise, the application shall be denied.

B. Such license shall state the name and address of the licensee, the number of wreckers authorized upon such license, the date of issuance and such other information as the commission determines to be necessary and proper. (Ord. 96-612 § 1 (part), 1996)

6.80.160 License—Fees, expiration, transfer and display.

A. A license issued by the commission to any person permitting such person to operate a wrecker service shall be issued for a period of one year at a fee set by the commission.

B. A license issued hereunder shall not be sold, assigned, mortgaged or otherwise transferred without commission approval and shall expire immediately upon the licensee terminating the wrecker service or upon revocation by the commission.

C. A current license issued by the commission shall be prominently and conspicuously displayed at all times upon the premises from which the licensee operates his wrecker service. (Ord. BL2022-1113 § 1, 2022; Ord. BL2000-247 § 6, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.165 Annual renewal.

All wrecker operation licenses shall expire annually the year following the date on which the certificate was issued. All certificates may be renewed by the director for each successive year. A renewal fee, as set by the commission, for each approved permit to operate a wrecker shall be charged at the annual renewal of the wrecker operation license. Failure to renew a license prior to its expiration shall result in forfeiture of the license. (Ord. BL2022-1113 § 2, 2022; Ord. BL2013-571 § 1, 2013)

6.80.170 Nonconsent tows.

A. No one shall make nonconsent tows without prior approval from the metropolitan transportation licensing commission.

B. Anyone authorized to operate a wrecker service who makes nonconsent tows shall comply with all the requirements contained herein which those furnishing emergency wrecker services are required to comply with except those requirements contained in Sections 6.80.520(B)(2) and 6.80.535.

C. Private Property Towing Authorization. Wrecker service operators shall comply with all federal, state and local laws concerning the towing of vehicles from private property. (Ord. BL2010-621 § 2, 2010; Ord. BL2000-247 § 7, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.175 Police department impound lot notification requirements.

The towing of any vehicle without the consent of the owner must be reported to the metropolitan police department within one hour of the completion of the towing of the vehicle. (Ord. BL2000-247 § 8, 2000)

6.80.185 Vehicle tow service requirements and records.

A. Except as otherwise provided in subsection B and C of this section, for each vehicle towed by a vehicle tow service, a licensee shall retain at the licensee's principal place of business all documents related to the towing of the vehicle along with any records pursuant to this chapter, including, but not limited to, towing agreements, written authorizations for removal, and wrecker slips or tickets. Such records shall be maintained for not less than one year from the date of removal of the vehicle. The licensee shall make the vehicle tow service records available for inspection by the commission or any designated representative at any time.

B. Upon towing of any vehicle by a wrecker service, the wrecker service shall maintain records which shall include the following information:

1. The date and time the call was received by the wrecker service;

2. The name of the caller;

3. The date and time of initial towing;

4. The place of initial towing;

5. The date and time of arrival at the impound lot;

6. The MPD impound lot control/notification number;

7. The date and time of release to the owner;

8. The name of the wrecker driver and helper; and

9. The name of the person authorizing towing action.

C. The records required by subsection B of this section shall be maintained at a location where the vehicle is stored until the vehicle is recovered. Thereafter such records shall be stored at a location within the Metropolitan Nashville area where members of the public may obtain such information by telephone or in person during regular business hours. Further, all wrecker services, public and private, which tow impounded vehicles, shall register with the metropolitan transportation licensing commission and metro impound lot, as set forth in subsection A of this section, the current telephone number of the person responsible for releasing vehicles on their behalf.

D. A person desiring to engage in vehicle tow service shall register with the director of the metropolitan transportation licensing commission a trade name that clearly differentiates the person's company from all other companies engaging in vehicle tow services and shall use no other trade name in conducting vehicle tow services. (Ord. BL2000-247 § 9, 2000)

6.80.190 Payment of fee.

The licensee shall provide a vehicle owner the option of paying the fee for vehicle tow service by cash, debit card or major credit card, except the fee to drop vehicles before departing which fee may be paid by cash or major credit card. In addition to the aforesaid payment options, a licensee may accept payment by check. For purposes of this subsection, the term "major credit card" means a Visa, MasterCard, American Express, Discover and Diner's Club card. The director shall transmit a copy of this subsection to each wrecker service provider. (§ (3) of Amdt. 1 to Ord. BL2000-247, 4/18/00; Ord. BL2000-247 § 10, 2000)

6.80.195 Signage—Unpaid parking violations.

A. No towing shall occur from a private parking lot unless a permanently affixed sign measuring not less than twenty-four inches in height and eighteen inches in width is placed at the property's intended ingress/egress. All signage must be inspected by the TLC staff within seven days of installation and must bear a decal affixed by TLC staff to indicate compliance after inspection is complete. The TLC director may, if necessary, require additional signage for notification.

Such signs shall include the following information in red lettering on a white background:

Parking Policy Strictly Enforced

Violators will be Booted or Towed at Owner's Expense

$75.00 Maximum Booting fee

[Name and 24-hour phone number of booting and/or towing company].

B. Such signs shall be not less than forty-two and not more than seventy-two inches from the ground.

C. If a vehicle parked at an unattended commercial parking lot is towed for failure to pay the required parking charge, the owner or operator of the unattended commercial parking lot may require the owner of the vehicle to pay the applicable towing fee plus all unpaid parking fines in order to have the car returned. (Ord. BL2019-1526 § 1, 2019)

Article II. Permits for Wreckers

6.80.210 Permit required for wreckers.

No licensee shall allow a wrecker to be used in his business without first obtaining and keeping in force a wrecker permit for the wrecker. (Ord. 96-612 § 1 (part), 1996)

6.80.220 Issuance—Contents.

A. If, after the inspection required in Section 6.80.420, the commission finds that a wrecker conforms to the provisions of this chapter and the rules and regulations of the commission, the commission shall issue to the licensee a wrecker permit for the wrecker; otherwise, the permit shall be denied.

B. Such wrecker permit shall state the name and address of the licensee, the date of issuance and such other information as the commission determines to be necessary and proper. (Ord. 96-612 § 1 (part), 1996)

6.80.230 Wrecker permit—Fees, transfer, expiration and display.

A. A wrecker permit shall be issued for each general wrecker for a period of one year or any part thereof at a fee set by the commission.

B. A wrecker permit issued hereunder shall not be sold, assigned, mortgaged or otherwise transferred from one licensee to another and shall expire immediately upon the licensee terminating the wrecker service or on revocation by the commission. A wrecker permit may be transferred from one wrecker of the licensee to another wrecker of the licensee in accordance with the rules and regulations of the commission whenever a wrecker is taken out of service or exchanged for another.

C. A current wrecker permit issued by the commission shall be subject to the provisions of this chapter and the rules and regulations of the commission and shall be prominently and conspicuously displayed at all times in the wrecker of the licensee for which it was issued. (Ord. BL2022-1113 § 3, 2022; Ord. 96-612 § 1 (part), 1996)

Article III. Drivers, Driver Helpers and Employees

6.80.310 Driver's permit required for drivers and driver helpers.

Each wrecker shall be driven by a competent driver holding a current license required by the State of Tennessee to drive the wrecker. Each driver helper shall also be a competent driver holding a current license required by the State of Tennessee to drive the wrecker. Each driver and driver helper shall possess a driver's permit issued by the commission and meet such requirements, qualifications and training as the commission deems necessary for the proper and safe operation of a wrecker on the streets, alleys, roads, highways and thoroughfares within the area of the metropolitan government. (Ord. 96-612 § 1 (part), 1996)

6.80.320 Licensee responsibilities—Compliance required.

A. No licensee shall permit any of its employees while operating a wrecker to engage in activities or practices contrary to the public safety or welfare or contrary to the proper discharge of their duties in the course of their employment.

B. Each licensee shall be responsible for its employees complying with the laws of the metropolitan government, the State of Tennessee, the United States and the rules and regulations of the commission which reflect on the fitness of such employees to be employed in the operation of a wrecker service, and violations by the employees of a licensee shall be cause for revocation, suspension, probation or failure to renew the license of the licensee and the permits of the drivers or driver helpers. (Ord. 96-612 § 1 (part), 1996)

6.80.330 Driver's permit—Fees, transfers, expiration and display.

A. A driver's permit issued by the commission to a driver or driver's helper permitting such person to drive, ride in or assist in the operation of a wrecker shall be issued for a period of two years at a fee of twenty dollars, plus an additional forty dollars for an investigation of the person applying for the permit. The commission shall have the authority to adopt future increases in the fee to pay for the cost of the investigation of the permit applicant.

B. A driver's permit issued hereunder shall not be sold, assigned, mortgaged or otherwise transferred from one person to another and shall expire immediately when the permittee is no longer employed in the operation of a wrecker service as a driver or driver helper or upon revocation by the commission.

C. A current driver's permit issued by the commission shall be carried by the driver or driver helper at all times he is either driving, riding in or assisting in the operation of a wrecker. (Ord. BL2022-1113 § 4, 2022; Amdt. 1 to Ord. BL2006-1236 § 1, 2007; Ord. BL2006-1236 § 1, 2007; Ord. BL2000-247 § 11, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.340 Annual renewal.

All driver's permits shall expire biennially the second year following the date on which the permit was issued. All driver's permits may be renewed by the director for each successive term. A renewal fee in an amount to be established by the commission based upon the cost of processing, including cost of investigation, for each approved permit to operate a wrecker shall be charged at the biennial renewal of the driver's permit. Failure to renew a permit prior to its expiration shall result in forfeiture of the permit. (Amdt. 1 to Ord. BL2013-571 § 2, 2013; Ord. BL2013-571 § 2, 2013)

Article IV. Equipment and Operation

6.80.410 Information required on vehicle.

Each wrecker shall bear on each side of the wrecker in painted letters or decals not less than four inches nor more than seven inches in height, the name of the entity operating the wrecker. The commission by rules and regulations may provide for the numbering of each wrecker and, if so provided by rules and regulations of the commission, the number assigned to each wrecker shall also be painted on the outside of each front door in numbers not less than four inches and not more than seven inches in height. (Ord. 96-612 § 1 (part), 1996)

6.80.415 Contracting for service with metropolitan government.

A. The metropolitan government is authorized to contract with any licensee for the payment for the towing, transporting or otherwise removing of:

1. Any abandoned, immobile or unattended motor vehicle as defined by TCA Section 55-16-103 within the area of the metropolitan government;

2. Any vehicle which the department of metropolitan police believes to be stolen in order to provide for the custody, protection and safekeeping of such vehicle until reclaimed by the true owner thereof.

B. Such contract shall be let in accordance with the established purchasing procedures and shall be subject to the laws of the metropolitan government, the State of Tennessee and the rules and regulations of the commission. Such contract shall be approved by the metropolitan department of law as to form and legality, and the metropolitan county mayor is authorized to execute such contract on behalf of the metropolitan government. (Ord. 96-612 § 1 (part), 1996)

6.80.420 Inspection and maintenance of vehicles—Compliance required.

A. 1. Prior to the time any license shall become effective and a wrecker permit issued under the provisions of this chapter, an inspection shall be made or caused to be made by the commission of each wrecker to be operated by such licensee to determine if such wrecker complies with the laws of the metropolitan government, the State of Tennessee, the United States and the rules and regulations of the commission. The rules and regulations adopted by the commission shall be promulgated to provide safe transportation of any vehicle to be towed or conveyed by the wrecker and shall specify such safety equipment and regulatory devices as the commission shall deem necessary therefor.

2. If, upon inspection, the commission determines that a wrecker complies with applicable laws and its rules and regulations, the commission may issue a wrecker permit as herein provided. The commission shall have the right to suspend, revoke, place on probation or fail to renew such wrecker permit if, at any time, the licensee fails to maintain a wrecker in a proper condition, including the safety equipment regulatory devices required by the commission or, if he allows any driver or driver helper to operate, ride in or assist in the operation of such wrecker without first having obtained a driver's permit from the commission or, by allowing any driver or driver helper to operate a wrecker where the commission has revoked the individual's driver's permit. In causing an inspection to be made, the commission, by rules and regulations, may require a wrecker to be inspected by an agency or garage approved by the commission and may require the licensee to exhibit and file with the commission a certificate from such agency or garage that such wrecker has been inspected and meets all lawful requirements.

B. Upon the issuance of a license and one or more wrecker permits, the commission shall inspect or cause to be inspected each wrecker of the licensee at least once every six months thereafter to ensure the continued maintenance of all wreckers in compliance with applicable laws and rules and regulations of the commission. If any wrecker shall fail to meet the requirements as set out by the commission, then the commission may direct that such wrecker be removed from service and, upon failure of the licensee to so remove it, such failure shall be grounds for the revocation or suspension of the license. (Ord. 96-612 § 1 (part), 1996)

6.80.425 Minimum equipment required.

A. Each wrecker shall be equipped with and have available at all times all of the equipment which the commission may reasonably require by its rules and regulations to ensure the safe operation of the wrecker.

B. At the time of application for a license, the commission shall furnish to the applicant in writing a list of such equipment as the commission deems to be the minimum requirements for each wrecker and the licensee shall carry and have available at all times and in good working order in each of his wreckers such required equipment until a new list is furnished the licensee by the commission. The commission may furnish such new or revised list of such equipment from time to time as it deems necessary, and each licensee after being furnished same shall comply therewith. Such list of equipment shall include, but is not limited to, fire extinguishers, crowbars, shovels, brooms, axes and flags or flares. (Ord. BL2000-247 § 12, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.430 Operating records.

Each licensee shall maintain or cause to be maintained such records as the commission may, by rules and regulations, require for the purpose of enforcing the provisions of this chapter and the rules and regulations of the commission. (Ord. 96-612 § 1 (part), 1996)

6.80.435 Receipts.

The driver of any wrecker shall render to the operator or owner of any vehicle to be towed a receipt for the amount charged, either by a mechanically printed receipt or by a specially prepared receipt on which shall be the name of the licensee, amount of charges and appropriate

taxes, date of transaction and the mileage and type of vehicle towed. The licensee shall keep a copy of such receipts which shall be made available to the commission or its inspectors at all times. (Ord. BL2000-247 § 13, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.440 Disposition of revenue.

A. The commission shall remit to the metropolitan treasurer all fees and other revenues derived from the license and permit fees collected under the provisions of this chapter and the metropolitan treasurer shall maintain an account thereof.

B. Such fees shall be remitted as required by the director of finance and the amounts so collected shall be used to defray the expenses of the commission including, but not limited to, the payment of the salaries of the commission's inspectors.

C. Payment therefrom shall be upon requisition or voucher executed by a person or persons authorized by the director of finance. (Ord. 96-612 § 1 (part), 1996)

6.80.445 Daily manifests.

Every licensee shall maintain or cause to be maintained a daily manifest upon which is recorded all vehicles transported or towed each day showing the time and place of origin and destination of each trip, mileage and type of vehicle and the amount of charge or rate. Every licensee shall retain and preserve all manifests in a safe place for at least the calendar year next preceding the current calendar year and such manifests shall be made available to the commission or its inspectors at all times. (Ord. 96-612 § 1 (part), 1996)

6.80.450 Prohibited acts.

It is declared that the following acts are prohibited and unlawful and the license or permit of any person doing any such acts may be revoked, suspended, placed on probation or not renewed:

A. To fail to comply with all reasonable and lawful requests of the owner or operator of the vehicle to be towed as to designation;

B. To remove or transport any vehicle, the owner of which is in violation of any law of the metropolitan government or of the State of Tennessee, except by the explicit instructions of a metropolitan police officer or a state highway patrolman;

C. To disregard the instructions of any metropolitan police officer or state highway patrolman during the transportation of the vehicle to its designation;

D. To wait for employment by standing or parking upon any street, alley, road, highway or thoroughfare or upon public property;

E. To interfere with the orderly flow of traffic along the streets, alleys, roads, highways or thoroughfares, except upon the direction of a metropolitan police officer or state highway patrolman;

F. To engage in cruising, except in those places and under the circumstances which the commission by rules and regulations may permit;

G. To invite or permit loitering within or near his wrecker;

H. To transport a vehicle other than by the most direct and safest route and without delay from the point of pickup to the assigned designation;

I. To fail to comply with any of the laws of the metropolitan government, the State of Tennessee, the United States or the rules and regulations of the commission which reflect unfavorably on the fitness of the driver, driver helper or employee to be employed in the operation of a wrecker service.

J. Reserved.

Flashing Lights. Any person operating a wrecker may utilize flashing lights only when standing on the roadway for the purpose of removing a vehicle and while actually towing any vehicle. Wreckers are prohibited from using flashing lights while going or returning from the location of vehicles if not engaged in towing such vehicles. Further, the operators of tow vehicles shall observe all traffic regulations while going to or returning from the locations of vehicles or while engaged in the towing of vehicles.

However, the operator of a wrecker who is operating a wrecker for an emergency wrecker service licensed by the metropolitan transportation licensing commission may turn on the yellow rotating beacon prior to reaching the location of the incident if both of the following two criteria are met: First, the operator must be responding to an incident scene called into the company by the emergency communications center. Second, traffic has slowed down because of the incident to a point that will prevent the wrecker from getting to the scene in a timely manner, which is thirty minutes after receiving the call from the emergency communications center. (Ord. BL2010-649 § 1, 2010; Amdt. 1 to Ord. BL2009-525 § 1, 2009; Ord. BL2009-434 § 1, 2009; Ord. BL2000-247 §§ 14, 15, 16, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.452 Towing of unauthorized vehicles.

A. A licensee may tow an unauthorized vehicle from private property only upon the approval of the owner of the private property or the agent or lessee of the owner.

B. If a licensee tows an authorized vehicle in violation of this section, the licensee shall provide a full refund to the vehicle owner or operator for any towing

fee paid, plus a fifty dollar fine to be paid to the metropolitan government. Whether a violation of this section has occurred shall be determined by the MTLC. (Amdt. 1 to Ord. BL2019-1526 § 2, 2019; Ord. BL2019-1526 § 2, 2019)

6.80.455 Wrecker booms.

All persons operating a wrecker upon any street, road, highway or thoroughfare shall keep the wrecker boom/wheel lift in its full, upright vertical or retracted/stowed position, or, for wreckers with undercarriage/rollback wheel lifts, shall keep the wheel lift fully retracted, except while the wrecker is actually in the process of towing a vehicle. (Amdt. 1 to Ord. BL2008-117 § 1, 2008; Ord. BL2008-117 § 1, 2008)

6.80.460 Violations and amount of fines.

Anyone violating any of the provisions of this chapter shall upon conviction be guilty of a misdemeanor and subject to a fine of not more than five hundred dollars. Every day a violation of any provision of this chapter continues shall constitute a separate offense. (Ord. 96-612 § 1 (part), 1996)

Article V. Emergency Wrecker Service

6.80.510 Emergency situations—Purpose.

In order to regulate, facilitate and provide for the proper and orderly flow of traffic upon the streets, alleys, roads, highways and thoroughfares within the area of the metropolitan government, including the regulation and control of parking and to promote the public's safety, the following acts and circumstances are declared to constitute an emergency situation requiring the immediate removal of a vehicle from the streets, alleys, roads, highways and thoroughfares within the area of the metropolitan government:

A. When a vehicle is parked, stopped or standing in violation of any regulation or ordinance of the metropolitan government;

B. When a vehicle is parked, stopped or standing so as to obstruct the orderly flow of traffic;

C. When a vehicle is disabled by an accident and constitutes an obstruction to traffic and its immediate removal or storage for safekeeping is necessary in the interest of public safety and protection of property. (Ord. 96-612 § 1 (part), 1996)

6.80.515 License required to provide emergency wrecker service.

No person shall engage in the business of providing emergency wrecker services within the area of the metropolitan government without first obtaining and keeping in force a license to operate an emergency wrecker service from the commission. All provisions of this chapter shall apply where applicable to a person holding a license to operate an emergency wrecker service including those prohibited acts set out in Section 6.80.450. (Ord. 96-612 § 1 (part), 1996)

6.80.520 Application—Conditions.

A. Any person desiring to engage in the business of providing emergency wrecker services within the area of the metropolitan government shall make application to the commission, which application shall be upon forms to be adopted and provided by the commission. The completed application must contain all the information required by such form and must be verified under oath.

B. The form to be adopted and provided by the commission shall require all the information required by Section 6.80.120, together with such additional information as the commission determines to be necessary and proper, including, but not limited to, the following:

1. That the applicant will comply with the mandatory rates and charges as herein provided and as may hereafter be adopted by the commission;

2. That the applicant is capable of and will provide twenty-four-hour emergency wrecker service, including holidays, and that he will have at all times a minimum of two wreckers with crews on duty or available at all times in any twenty-four-hour period;

3. That the applicant will be equipped with two-way electronic communication legally authorized and in operation between each wrecker and the applicant's headquarters or principal place of business during the entire twenty-four hours of each day;

4. That the applicant, upon being licensed to provide emergency service, will immediately subscribe to and at all times be a member in good standing of a central non-government call service which shall be maintained and equipped at all times to handle emergency calls by a direct line of communication from the department of metropolitan police for transmission to licensees. Such central call service must first be approved by the commission. (Ord. 96-612 § 1 (part), 1996)

6.80.525 License—Issuance and contents.

A. If, after the hearing provided for in Section 6.80.610, the commission finds that the applicant is capable, willing and qualified to furnish emergency wrecker service and can conform to the laws of the metropolitan government, the State of Tennessee, the United States and the rules and regulations of the commission, then the commission may issue to such applicant a license to operate an emergency wrecker service; otherwise, the application shall be denied.

B. Such license shall state the name and address of the licensee, the number of emergency wreckers authorized under such license, the date of issuance and such other information as the commission determines to be necessary and proper. (Ord. BL2000-247 § 17, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.530 Liability insurance required.

No license to operate an emergency wrecker service shall be issued, become effective or continue in force and effect unless there is in full force and effect liability insurance policies as described in Section 6.80.140. (Ord. 96-612 § 1 (part), 1996)

6.80.535 License—Fees, expiration, transfer and display.

A. A license issued by the commission to any person permitting such person to operate an emergency wrecker service shall be issued for a period of one year at a fee established by the commission based on the volume of emergency towing operations performed within the emergency service zone. A decal for each emergency wrecker shall be issued by the commission for a period of one year at a per vehicle fee established by the commission.

B. A license issued hereunder shall not be sold, assigned, mortgaged or otherwise transferred without commission approval and shall expire immediately upon the licensee terminating the emergency wrecker service or upon revocation by the commission.

C. A current license issued by the commission shall be prominently and conspicuously displayed at all times upon the premises from which the licensee operates his emergency wrecker service.

D. No licensee shall operate a wrecker or automobile used for towing purposes to remove vehicles from any street, alley, road, highway or thoroughfare or property, whether public or private, located within the area of the metropolitan government or for towing vehicles over the streets, alleys, roads, highways and thoroughfares within the area of the metropolitan government unless a license decal is obtained from the commission annually for each such wrecker or automobile. (Ord. BL2022-1113 § 5, 2022; Ord. BL2004-435 § 1, 2005; Ord. BL2000-247 §§ 18, 19, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.540 Licensees to provide service.

Only those persons licensed to provide emergency wrecker service shall transport, tow or convey any vehicle constituting an emergency situation as defined in this chapter and only upon the explicit instructions of a metropolitan police officer, state highway patrolman, employee of the Metropolitan Department of Codes Administration or employee of the Nashville Department of Transportation and Multi-modal Infrastructure. The commission, however, may by rules and regulations authorize such other licensees to provide emergency wrecker service at those times, to the extent and under those circumstances as it shall by rules and regulations provide. (Ord. BL2023-2006 § 2, 2023; Ord. 96-612 § 1 (part), 1996)

6.80.545 Service zones.

In order to provide for the immediate removal of those vehicles interrupting the proper and orderly flow of traffic and thereby constituting an emergency situation as declared in Section 6.80.510, the commission is authorized and directed to divide the geographical jurisdictional territory of the metropolitan government into zones for emergency wrecker service, which zones shall be established in a manner which best serves the traffic and safety needs of the community and as near as possible divides the emergency wrecker business equitably among those persons licensed to provide emergency wrecker service. To each zone the commission shall assign at least one licensee.

A. Present Zones Established. The emergency wrecker service zones presently established shall be the first emergency wrecker service zones authorized by this chapter and shall continue as emergency wrecker service zones with those licensees presently assigned to each zone continuing in the zones to which they are now assigned.

B. Method of Altering Zones.

1. The commission shall require all licensees to report all calls which they make to the commission, giving the date, the time, the name of the owner of the vehicle transported, type of vehicle, distance towed and fee charged and the license number. Once each year the commission shall review the efficiency and suitability of the emergency wrecker service zones which have been established and shall by regulations make such changes as the traffic control in the area of the metropolitan government, the welfare of the public and the safety of the motoring public shall require. Such changes shall be made only after a public hearing to occur at a time and place established by the commission and due notice provided prior to the hearing.

2. The commission on its own motion or on the petition of the chief of police of the metropolitan government or any licensee may change the established emergency wrecker service zones or the licensees assigned to such zones. However, before making any such change, the commission shall hold one public hearing a year on such petitions after having published notice, as herein required, and shall keep a record of the proceedings of

such hearing; and, within thirty days after the date of such hearing, the commission shall render its decision on the petition or the petition shall be considered denied. No such hearing shall be held on a petition for a change

in zones or licensees without giving due notice of the time and place of such hearing to all licensees who may be affected by such change.

C. Response Time. Zone wrecker companies must respond to calls within their zones within thirty minutes when traffic and weather conditions are normal. Excessive response time in normal conditions may result in a review of their zone privileges.

D. Transfer of Zone Assignments.

1. No licensee designated by the commission to provide emergency wrecker service within an assigned emergency wrecker service zone shall sell, assign, mortgage, bequeath, or otherwise transfer the right to service such assigned zone without commission approval following a public hearing as required in subsection (D)(2) of this section.

2. Prior to the transfer of any zone assignment, the commission shall hold a public hearing for the request. The commission shall establish the time and date for the public hearing and shall provide due notice prior to the hearing, giving the time and place of such hearing. A nonrefundable fee, as set by the commission, will be charged for each transfer request by any applicant assuming ownership of a wrecker company which already holds a zone assignment. Other applicants for the zone assignment will be charged a nonrefundable fee as set by the commission. (Ord. BL2022-1113 § 6, 2022; Ord. BL2011-870 §§ 2, 3, 2011; Ord. BL2000-247 § 20, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.550 Fees charged.

The schedule of all maximum nonconsent wrecker service fees shall be posted in plain view at the location where vehicles are stored and recovered and inside each towing vehicle. In the event a service vehicle is summoned by the police and the service vehicle arrives at the scene to which summoned and assistance is offered but no longer needed, the maximum fee which may be charged shall be the established drop fee set forth at subsection G of this section.

Rate Schedule for Nonconsent Towing at the Direction of a Law Enforcement Officer

A. Vehicles Under Seven Thousand Pounds GVWR.

1. Towing:

a. Vehicles towed to the metro impound lot to and within the I-40/I-24/I-65 Loop; one hundred fifty-five dollars maximum. [No additional fees may be charged for using other equipment, including dollies, trailers, lifts, slim-jims, go-jacks, or for mileage* unless otherwise authorized].

b. Vehicles towed to metro impound lot outside the I-40/I-24/I-65 Loop, to and including Briley Parkway/White Bridge Road/Woodmont Avenue/Thompson Lane Circle; one hundred sixty-five dollars maximum. [No additional fees may be charged for using other equipment, including dollies, trailers, lifts, slim-jims, go-jacks, or for mileage* unless otherwise authorized].

c. Vehicles towed to metro impound lot from outside Briley Parkway/White Bridge Road/Woodmont Avenue/Thompson Lane Circle out to the Davidson County line; one hundred seventy-five dollars maximum. [No additional fees may be charged for using other equipment, including dollies, trailers, lifts, slim jims, go-jacks, or for mileage* unless otherwise authorized].

d. Vehicles towed to company lot at the direction of a police officer; [No additional fees may be charged for using other equipment, including dollies, trailers, lifts, slim-jims, go-jacks, or for mileage* unless otherwise authorized].

i. Vehicles involved in an accident . . . . . .$175.00 maximum

ii. All other vehicles . . . . . .$175.00 maximum

2. Labor: Charges for labor, including winching, may be charged only after the first hour, and may not exceed a rate of one hundred fifty dollars per hour. If more than one wrecker is required to remove a vehicle, the rate chargeable for each additional wrecker may not exceed the base rate of one hundred fifty dollars per hour after the first hour.

3. Mileage:

*Mileage charges may only be incurred for out-of county miles and only when towing at a police officer's request. This rate is not to exceed four dollars and fifty cents per mile.

4. [Reserved.]

B. Vehicles Over Seven Thousand Pounds GVWR.

1. Base Rates. Base rates apply in the following situations: "Towed vehicles" means those vehicles which can be driven, but are towed to the lot at the request of the owner or police officer. "Wrecked vehicles" means those vehicles that cannot be driven, and must be towed to the lot.

Table 6.80.550(B)(1)

	Towed	Wrecked
Straight Trucks and Vans:	$275.00	$350.00
Tandem-Axle, Not Loaded:	320.00	395.00
Tandem-Axle, Loaded:	345.00	425.00
Recreational Vehicles:		
25 Feet & Under in Length:	275.00	340.00
Over 25 Feet in Length:	375.00	450.00
Buses (Large):	375.00	450.00

2. Additional Fees.

a. Hourly rate for necessary preparation or removal of bumpers, drive shafts before towing is possible, and reconnection after towing is one hundred forty dollars per hour.

b. Labor rates after first hour for wrecker and driver:

i. Class B wrecker, per hour $215.00

ii. Class C wrecker, per hour $315.00

iii. Class C rotator, if needed, per hour . . .$415.00

c. When wreckers are required to wait at the scene for functions to be performed by others (e.g., emergency personnel), waiting time charges may not exceed one-half the allowable labor rate.

d. When the use of outside labor and equipment is required, wrecker company charges may include not more than an additional thirty-five percent charge.

e. When the use of air bags is necessary under special recovery circumstances, an additional rate of five thousand dollars may be charged.

f. Wrecker companies are authorized to charge a fee of fifty dollars for any winching performed over fifty feet off the road way.

C. Other Rates.

1. Recovery of vehicle submerged in water: $315.00 per emergency vehicle needed for Class A.

2. Storage rates, per day (after first two hours on the lot):

a. Motorcycle, ATV $25.00

b. Mower, miscellaneous equipment. $25.00

c. Car $30.00

d. Tractor $60.00

e. Motor home, 26 feet and under in length $50.00

f. Motor home, more than 26 feet in length $60.00

g. Tractor-trailer, commercial bus, house trailer $60.00

h. Boat, under 19 feet in length $30.00

i. Boat, 19 to 26 feet in length $40.00

j. Boat, more than 26 feet in length $50.00

3. Additional charge for recovery and storage of vehicle burned by fire $250.00

4. Set out fee: $35.00 or proof of insurance in full force and effect.

D. For all vehicles over ten thousand pounds gross vehicle weight which are burned or completely off the roadway and for vehicles which are submerged in water, charges in addition to the above rates may be added for cargo transfers, waiting time or handling of hazardous material.

E. Labor charges for operation of the nonconsent emergency wreckers shall not start until after the first hour. Hourly rates can only be charged for nonconsent emergency wreckers in use or ordered to wait by a law enforcement officer.

F. Use of Class C emergency wreckers or cranes in nonconsent situations must be approved by a superior officer.

G. All licensees who engage in the business of towing vehicles from public or private property shall post a notice on each vehicle, in letters not less than two inches high and appearing in a legible manner on the boom or rear of the wrecker as follows:

"FEE TO DROP VEHICLE
BEFORE DEPARTING: $75.00"

C-Class drop fee. $175.00

If the owner or operator of the vehicle is present and removes the vehicle to be towed from the premises before it is connected to the towing vehicle, the owner or operator shall not be charged any fee. If the owner or operator of the vehicle is present after the towing vehicle has been connected to the vehicle to be towed, the vehicle shall not be towed, but the owner or operator of the vehicle shall be liable for a reasonable fee not to exceed fifty-five dollars, in lieu of towing, provided the owner or operator of the vehicle forthwith removes the vehicle from the premises. A vehicle shall be deemed connected if every procedure required to secure the vehicle to the wrecker or wrecker equipment so that the vehicle may be safely towed has been completed at the time the owner or operator arrives, including the attachment of any safety chains.

Vehicles over seven thousand pounds: C-Class drop fee. $140.00

H. Rate Schedule for Non-consent Towing from Private Property. Any towing and storage firm engaged in the business of non-consent towing shall not charge the owner of any towed vehicle or personal property in excess of the following rates.

1. Towing:

a. Vehicles under seven thousand pounds GVWR . . . . . .$155.00 maximum

b. Vehicles over seven thousand pounds GVWR: . . . . . .$375.00 maximum

i. Length of 25 feet and under .$275.00 maximum

ii. Length over 25 feet . . . . . .$375.00 maximum

The towing fee shall be all inclusive; no additional fees may be charged for using dollies, trailers, lifts, slim jims or any other equipment or service, or for mileage.

2. Storage. The maximum fee for storage of any vehicle removed from private property is forty dollars per day. No storage fee may be charged for cars or pickup trucks stored two hours or less.

I. In addition to the rates authorized above, wrecker companies are authorized to charge a one-time administrative processing fee of thirty-five dollars for any car remaining in storage on the company lot for twenty four hours, to offset direct costs for notification of the owner or lienholder as required by state law, and an additional twenty-five dollar administration processing fee for each additional notification sent to the owner or lienholder as required by law.

J. In the event the interior of a salvageable vehicle will be exposed to the elements, wrecker companies are authorized to charge a one-time fee of forty dollars for materials and labor associated with wrapping a vehicle to protect the interiors.

K. Beginning July 1, 2022, the commission shall have the authority to set any fee charged pursuant to this section. (Ord. BL2022-1113 § 7, 2022; Amdt. 1 to Res. RS2018-1036 §§ 1—5, 2018; Res. RS2018-1036 §§ 1—5, 2018; Amdt. 1 to Ord. BL2017-984 §§ 1—5, 15, 2018; Ord. BL2017-984 §§ 1—23, 2018; Ord. BL2012-332 §§ 1—24, 2013; Ord. BL2008-284 §§ 1—24, 2008; Amdt. 1 to Ord. BL2006-1094 § 2, 2006; Ord. BL2006-1094 §§ 1, 2, 2006; Amdt. 1 with Ord. BL2004-435 §§ 2—14, 2005; § (4) of Amdt. 1 to Ord. BL2000-247, 4/18/00; Ord. BL2000-24, § 21, 2000)

6.80.555 Rate card—Display.

Every wrecker used to make nonconsent tows shall have the current rate card issued by the commission setting forth the maximum authorized rates and charges displayed in such a place as to be in full view of anyone wishing to inspect same. (Ord. BL2000-247 § 22, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.560 Wrecker driver—Duty to remove accident debris.

Whenever any driver of a wrecker removes a vehicle from the scene of an accident on the streets, alleys, roads, highways or thoroughfares within the area of the metropolitan government, it shall be the duty of such driver and driver helper to simultaneously remove and carry away from the streets, alleys, roads, highways and thoroughfares at or about the scene of each accident or collision, all glass, metal and debris which may have been cast upon the streets, alleys, roads, highways and thoroughfares as a result of the accident or collision. (Ord. 96-612 § 1 (part), 1996)

6.80.565 Accident reports.

All accidents arising from or in connection with the operation of wreckers which result in the injury or death to any person or damage to any property in an amount exceeding the sum of one hundred dollars shall be reported within twenty-four hours from the time of the occurrence to the department of metropolitan police on a form to be furnished by such department. (Ord. 96-612 § 1 (part), 1996)

6.80.570 Towing place designated.

A. The driver of the wrecker shall tow, transport or convey the vehicle to be towed to any place designated by the owner or operator of such vehicle. It is unlawful for the owner, driver or driver helper of a wrecker or an agent, employee or representative of the owner or driver of a wrecker at the scene of the accident, to pressure or otherwise coerce or insist that the owner or operator of a vehicle sign a work order or agreement at the scene of the place from which the vehicle is to be transported for any repairs to be made on such vehicle.

B. The driver of the wrecker shall in all cases, before moving the vehicle to be towed, ask the owner or operator of such vehicle the place to which he desires the vehicle to be taken and shall transport such vehicle to such place upon the towing charges being paid or secured; otherwise, the vehicle shall be towed or transported to the wrecker service operator's storage lot.

C. If the vehicle to be towed or transported is involved in an accident and the owner or operator thereof is unable to give any instructions in his own behalf, the driver of the wrecker shall tow or transport the wrecked vehicle to the wrecker service operator's storage lot and it will be presumed and considered prima facie evidence that the owner or operator of such vehicle consents to and desires that his vehicle be towed or transported to such place.

D. If the owner or operator of a vehicle is not available and a wrecker has been summoned by a metropolitan police officer as a result of a parking violation, then the vehicle shall be towed or transported to the metropolitan police tow-in lot or, if the metropolitan police officer so orders, to the storage area of the licensee. (Ord. 96-612 § 1 (part), 1996)

6.80.575 Storage facility requirements.

Each site to which vehicles are towed shall comply with the following requirements, and no tow truck operator may take a vehicle to a storage lot which does not meet these standards.

A. No towing company shall tow a vehicle from private property under orders of one not the owner of the vehicle to a storage lot which is outside the geographic

limits of Davidson County. All licensees shall, immediately upon connecting the towing vehicle to a vehicle to be towed from private property under orders of one not the owner of such vehicle, tow the vehicle directly to a storage lot owned or operated by such licensee located within the geographic lines of Davidson County. Such towed vehicle shall not be dropped or left at any other lot or on any other property without the consent of the owner for any period of time. No towed vehicle shall be stored on a public street.

B. A storage site shall be fenced or enclosed on all sides to a height of not less than six feet and shall be lighted during the hours of darkness to afford distinct visibility to all sides of the facility. Lighting shall be provided at a minimum average maintained foot-candle value of two on a horizontal plane at the finished surface or grade level.

C. A towed vehicle shall not be stored more than a reasonable walking distance from the area where towing and storage fee payments are received.

D. The operator shall exercise reasonable care to keep towed vehicle and their contents secure at all times.

E. Personal property in vehicles must be released in accordance with state law.

F. Whenever a storage lot is closed or has a gate locked, a conspicuous sign must be posted at the entrance of the storage lot which provides instructions and a local telephone number for obtaining release of a vehicle when the lot is not open. The local telephone number posted shall be answered twenty-four hours a day and someone must be available at the storage lot to release vehicles within a reasonable time after inquiry is made.

G. Any person operating a wrecker upon the streets Davidson County and maintaining a storage lot shall maintain personnel with authority to accept payment and to release any impounded vehicle, on duty seven days a week from six a.m. until ten p.m. each day, and available within a maximum one-hour period to release or provide access to a vehicle upon the request of the owner, from ten p.m. to six a.m.

H. There shall be posted at the entrance to the impound lot nearest the impound lot office a sign, at least twenty-four inches by twenty-four inches, painted or printed white with red lettering the towing charge, the storage rate per day, that no storage fee may be charged if the vehicle has been held less than two hours and that these conditions are required by ordinance of the Metropolitan Government of Nashville and Davidson County. In addition, such sign shall list the two forms of payment accepted and state that no additional fee may be charged for noncash payment. (Ord. BL2000-247 § 23, 2000)

6.80.580 Prohibited acts.

In addition to the unlawful and prohibited acts contained in Section 6.80.450, it is declared that the following additional acts shall also be prohibited and the license of any person doing any such acts may be revoked, suspended, placed on probation or not renewed:

A. For any person licensed to provide emergency wrecker service or any of his employees to violate any of the laws of the metropolitan government, the State of Tennessee, the United States or the rules and regulations of the commission which reflect unfavorably on the fitness of such licensee to offer emergency wrecker service;

B. For any person licensed to provide emergency wrecker service or any of his employees to answer an emergency wrecker service call outside of the zone to which he is assigned;

C. For any person licensed to provide emergency wrecker service or any of his employees to tow, transport or otherwise remove any vehicle constituting an emergency situation from a location outside the zone to which he is assigned;

D. To remove or transport any vehicle which has been involved in an automobile accident occurring immediately prior to such removal without first notifying the department of metropolitan police and receiving permission from a metropolitan police officer or state highway patrolman on the scene;

E. To proceed with his wrecker to any place where an accident has occurred or a vehicle is needed to be towed unless so summoned to proceed to the scene of such accident;

F. To intercept or respond to any telephone, radio or other communication or call for wrecker service made or directed to another licensee;

G. To go to a place of a wreck by reason of information received by shortwave or police radio; provided, that this shall not apply to communications solely by and between the licensee's place of business and his wrecker relating to calls legally received by him and directed to him by the owner or operator of a vehicle to be towed or by the department of metropolitan police.

H. To tow a vehicle from a public street without authorization from a metropolitan police officer;

I. To remove or cause the removal of any vehicle from private property to a vehicle storage facility that:

1. It not currently licensed by the commission or not in compliance with this chapter or any rule or regulation promulgated pursuant thereto; or

2. Is located outside Davidson County;

J. To fail to remove and transport a vehicle from public or private property to a vehicle storage facility by the most direct and expeditious route;

K. To stop, except for an emergency, at another location while transporting a vehicle removed from private property;

L. To charge more than the maximum fee allowed by this chapter;

M. To fail to notify the police department and obtain a tow control number within one hour after the removal of any vehicle from private property;

N. To interfere with or attempt to interfere with or refuse to cooperate with the director, an inspector or any law enforcement officer or with the conduct of any investigation or discharge of any duty by them.

O. To fail to comply with any rule or regulation established by the commission. (§ (5) of Amdt. 1 to Ord. BL2000-247, 4/18/00; Ord. BL2000-247 § 24, 2000; Ord. 96-612 § 1 (part), 1996)

6.80.585 Penalties for violations.

A. All provisions of this chapter shall be governed by the penalties for general ordinance violations found in Section 1.01.030. Each twenty-four-hour period a violation of any of the provisions of this chapter continues shall constitute a separate violation.

B. The imposition of a penalty under subsection A of this section does not prevent the use of other enforcement remedies or procedures applicable to the person or persons charged with the conduct or involved in the violation, including probation, suspension or revocation of their license or ability to perform nonconsent towing, or such other actions as are within the authority of the commission. (Ord. BL2010-793 § 6, 2010; Ord. BL2007-1547 § 2, 2007; Ord. BL2000-247 § 25, 2000)

Article VI. Hearings

6.80.610 Hearing for applicant for license.

A. Prior to the issuance of any license provided for in this chapter, the commission shall hold a public hearing for the applicant after giving the applicant at least a fifteen-day notice of the time and place of such hearing.

B. The commission is empowered to make all such rules and regulations which it considers necessary and proper for any hearings provided for by this chapter. (Ord. 96-612 § 1 (part), 1996)

6.80.620 Hearing before suspension, revocation or probation and after refusal to renew license or permit.

A. No action to suspend, revoke or place on probation any license or permit provided for in this chapter shall be taken by the commission except in emergency situations until the licensee or permittee has been furnished a written statement of the charges and a notice of the time and place of the hearing to be held thereon. The furnishing of such notice and the reasons for the commission's proposed action shall be given to such licensee or permittee at least fifteen days prior to the date of the hearing. If at such hearing, the commission finds the charges against the licensee or permittee to be true, it may suspend, revoke or place on probation the license or permit previously issued by it.

B. Upon the failure to renew any license or permit, the commission shall so notify the licensee or permittee, giving the licensee or permittee the reasons for its failure to renew the license or permit. The licensee or permittee may by a simple written request addressed to the commission, ask for and request a hearing by the commission as to the reasons for the commission's failure to renew the license or permit. The commission shall then grant the licensee or permittee a hearing and shall fix the time and place for such hearing within thirty days and shall promptly notify the licensee or permittee of the time and place. It shall be incumbent upon the commission at the hearing to substantiate the reasons for its failure to renew the license or permit.

C. At any hearing provided for in this chapter, the licensee or permittee shall have the right to be represented by an attorney of his choice, to present evidence, to have witnesses testify under oath on his behalf and the strict rules of evidence shall not apply. (Ord. 96-612 § 1 (part), 1996)

Chapter 6.81

BOOTING SERVICES

Sections:

Article I. Definitions

6.81.005 Definitions.

Article II. License For Operation

6.81.010 Purpose and intent
6.81.015 License required to provide booting service.
6.81.020 Applications—Conditions.
6.81.030 Making false statement—Power not to grant application.
6.81.040 Liability insurance required.
6.81.050 License—Issuance and contents.
6.81.060 License—Fees, expiration, transfer and display.
6.81.070 Payment of fee.

Article III. Employees

6.81.080 Permit required for employees—Permit fee—Identification badge.
6.81.090 Licensee responsibilities—Compliance required.

Article IV. Equipment And Operation

6.81.100 Vehicle requirements and damages.
6.81.110 Minimum equipment required.
6.81.120 Operating records.
6.81.130 Notices at time booting device is installed.
6.81.140 Booting fees.
6.81.150 Receipts.
6.81.160 Disposition of revenue.
6.81.170 Prohibited acts.
6.81.180 Signage—Unpaid parking violations.

Article V. Hearings

6.81.190 Hearing for applicant for license.
6.81.200 Hearing before suspension, revocation or probation and after refusal to renew license or permit.

Article I. Definitions

6.81.005 Definitions.

For the purpose of this chapter, the words and phrases used in this chapter shall have the following meanings, unless otherwise clearly indicated by the context:

"Booting" means the attachment of any device to a vehicle that prevents the vehicle from being driven.

"Booting license" means a license issued by the transportation licensing commission authorizing the holder thereof to engage in the business of booting within the area of the metropolitan government.

"Booting service" means a person, business, or firm engaged in the practice of booting for a fee or other compensation within the area of the metropolitan government, provided that the vehicle's owner/lien holder, a metropolitan police officer in the performance of his/her official duty, or a parking patrol officer for a college or university engaging in the practice of booting shall not be considered a booting service. (Ord. BL2022-1213 § 1, 2022; Ord. BL2013-476 § 1, 2013; Ord. BL2010-749 § 1, 2010; Ord. BL2009-525 § 2, 2009)

Article II. License for Operation

6.81.010 Purpose and intent.

It is declared to be the purpose and intent of this chapter that all booting services doing business within the area of the metropolitan government be licensed and required to have adequate insurance coverage in force as set out in this chapter for the protection and welfare of the public. The provisions of this chapter shall regulate the use of boots and booting services within the area of the metropolitan government. (Ord. BL2013-476 § 2, 2013; Ord. BL2010-749 § 2, 2010)

6.81.015 License required to provide booting service.

No person shall engage in the business of providing booting services within the area of the metropolitan government without first obtaining and keeping in force a license from the commission to operate a booting service pursuant to Section 6.81.005. The license granted by the commission allows booting services to operate on private property only. It shall be unlawful for a booting service to boot any vehicle located on any portion of a public street within the area of the metropolitan government. (Ord. BL2022-1213 § 2, 2022; Ord. BL2010-749 § 2, 2010; Ord. BL2009-525 § 2, 2009)

6.81.020 Applications—Conditions.

A. Any person desiring to engage in the business of providing booting services within the area of the metropolitan government shall make application to the commission, which application shall be upon forms to be adopted and provided by the commission. The completed application must contain all the information required by such form and must be verified under oath.

B. The form to be adopted and provided by the commission shall require such information as the commission determines to be necessary and proper, including, but not limited to, the following:

1. The full name and address of the person, firm or corporation desiring to obtain a license and whether he is the owner, lessee or bailee of the proposed booting operation;

2. The location and description of the place and premises from which the applicant intends to operate a booting service;

3. The names and addresses of at least two references as to the applicant's financial responsibility;

4. That the applicant is of good moral character and is ready, willing and able to comply with all the laws of the metropolitan government, the State of Tennessee, the United States and the rules and regulations of the commission;

5. That the applicant will list with the commission the names, home addresses and ages of all employees to be used or employed by the applicant in the business of providing a booting service, with the exception of part-time or emergency employees whose names will be furnished once a month. The applicant will update the list upon each renewal of his/her license;

6. That the applicant will take out and maintain in full force and effect such policies of insurance as are herein required;

7. The applicant will comply with the mandatory rates and charges as herein provided and as may hereafter be adopted by the commission.

8. The applicant will be twenty-one years of age.

C. Criminal Background Investigation. Upon receiving an application for a license from an applicant, the applicant must undergo an identification and background check as required by state law as more specifically provided by rule and regulations adopted by the MTLC. Upon receipt of the background check report, the MTLC Director shall determine whether the applicant's background check disqualifies him or her from eligibility for an employee's permit/license.

D. Application Approval and Disapproval. Upon disapproval of license application by the MTLC Director, the applicant may file an appeal with the MTLC within thirty days of denial and request an appearance before the MTLC. The appeal shall be heard by the MTLC at the next available commission meeting with the appellant appearing in person for consideration of the application.

E. New Application after Denial. Upon denial of an application for a license, no new application shall be considered for a period of three months. (Ord. BL2017-728 § 1, 2017; Ord. BL2009-525 § 2, 2009)

6.81.030 Making false statement—Power not to grant application.

Any person making a false statement in any application required by the commission shall forfeit his/her license or permit and shall not be eligible to receive or hold a license or permit from the commission for a period of ten years. The commission shall have the power to not issue any license or permit when it finds that such issuance would interfere with the public health, safety and welfare of this community. (Ord. BL2009-525 § 2, 2009)

6.81.040 Liability insurance required.

No license to operate a booting service shall be issued, become effective or continue in force and effect unless there is in full force and effect a liability insurance policy covering the licensee and his/her booting operation with not less than a one million dollar single limit, one million dollar umbrella, naming the metropolitan government as an additional insured. Such liability insurance policy shall be with an insurance company authorized to do business in Tennessee and approved by the commission and shall be filed with the secretary of the commission. (Ord. BL2013-476 § 3, 2013; Ord. BL2009-525 § 2, 2009)

6.81.050 License—Issuance and contents.

A. If, after the hearing provided for in Section 6.81.190, the commission finds upon examination that the applicant is capable, willing and qualified to provide a booting service and can conform to the laws of the metropolitan government, the State of Tennessee, the United States and the rules and regulations of the commission; then, the commission may grant and issue to such applicant a license to operate a booting service; otherwise, the application shall be denied.

B. Such license shall state the name and address of the licensee, the date of issuance, and such other information as the commission determines to be necessary and proper. (Ord. BL2009-525 § 2, 2009)

6.81.060 License—Fees, expiration, transfer and display.

A. A license issued by the commission to any person permitting such person to operate a booting service shall be issued for a period of one year at a fee of five hundred dollars. The commission shall have the authority to adopt future increases in this fee.

B. A license issued hereunder shall not be sold, assigned, mortgaged or otherwise transferred without commission approval and shall expire immediately upon the licensee terminating the booting service or upon revocation by the commission.

C. A current license issued by the commission shall be prominently and conspicuously displayed at all times upon the premises from which the licensee operates his booting service. (Ord. BL2022-1213 § 3, 2022; Ord. BL2009-525 § 2, 2009)

6.81.070 Payment of fee.

The licensee shall provide a vehicle owner the option of paying the fee to remove the boot from the vehicle by cash, debit card or major credit card. In addition to the aforesaid payment options, a licensee may accept payment by check. For purposes of this subsection, the term "major credit card" means a Visa, MasterCard, American Express, Discover and Diner's Club card. (Ord. BL2009-525 § 2, 2009)

Article III. Employees

6.81.080 Permit required for employees—Permit fee—Identification badge.

A. Each employee of a booting service desiring to engage in the practice of installing and removing booting devices from vehicles within the area of the metropolitan government shall make an application to the commission for a permit, which application shall be upon forms to be adopted and provided by the commission. The completed application must contain all the information required by such form and must be verified under oath.

B. The applicant shall be eighteen years of age.

C. The applicant shall have a valid Tennessee driver license that complies with all applicable requirements of state law as further specified in rules to be adopted by the MTLC.

D. Criminal background investigation.

1. Upon receiving an application for a permit from an applicant, the applicant must undergo an identification and background check as required by state law as more specifically provided by rules and regulations adopted by the MTLC. Upon receipt of the background check report, the MTLC Director shall determine whether the applicant's background check disqualifies him or her from eligibility for an employee's permit.

2. Additionally, the license holder shall check the National Sex Offender Database to verify whether the permit applicant is listed on the database, and shall certify under oath to the MTLC that it has conducted this check and verified that the applicant does not appear to be on the database. Any permit applicant listed on the database shall be disqualified for eligibility for an employee's permit.

3. Any permit applicant shall, in addition to any disqualifications listed elsewhere in this chapter, be disqualified if the applicant:

a. Has been convicted, pleaded guilty, nolo contendere, placed on judicial diversion pursuant to Tenn. Code Ann. Sec. 40-35-313, or been released from incarceration, probation or parole within a period of seven years prior to the date of the application for violation of any of the following criminal offenses under the laws of Tennessee, any other state, or the United States of America:

- Homicide,
- Rape,
- Aggravated Assault,
- Kidnapping,
- Robbery,
- Burglary,
- Domestic assault or domestic violence,
- Child sexual abuse,
- Any sex-related offense,
- Leaving the scene of an accident,
- Criminal solicitation or criminal attempt to commit any of the above,
- Perjury or false swearing in making any statement under oath in connection with the application for an employee's permit,
- The felony possession, sale or distribution of narcotic drugs or controlled substances.

b. If, at the time of the application, the applicant is charged with any offense in a. above, consideration of the application shall be deferred until entry of a plea, conviction, acquittal, dismissal, or other final disposition of the charges.

c. Has been convicted for a period of two years prior to the date of application of the violation of two more sections of the Code or other ordinances governing the operation of vehicles for hire.

d. Has failed to disclose any criminal conviction, except traffic citations, on the application for a permit.

E. Application Approval and Disapproval. Upon disapproval of a permit application by the MTLC Director, the applicant may file an appeal with the

MTLC within thirty days of denial and request an appearance before the MTLC. The appeal shall be heard by the MTLC at the next available commission meeting with the appellant appearing in person for consideration of the application.

F. New Application after Denial. Upon denial of an application for an employee's permit or license, no new application shall be considered for a period of three months.

G. A permit issued by the commission to an employee of a booting service permitting such person to engage in the practice of booting shall be issued for a period of one year at a fee of fifty dollars, plus an additional forty dollars for an investigation of the person applying for the permit. The commission shall have the authority to adopt future increases in the permit fee and the fee to pay for the cost of the investigation of the permit applicant.

H. A permit issued hereunder shall not be sold, assigned, mortgaged or otherwise transferred from one person to another and shall expire immediately when the permittee is no longer employed by a booting service or upon revocation by the commission.

I. A current permit issued by the commission shall be carried by the employee at all times he/she is engaged in the act of booting.

J. All persons engaged in the act of booting shall wear an identification badge including the person's first and last name, the name of the company, and the permit number of the employee.

K. Permits issued under this chapter shall be coterminous with the permittee's valid Tennessee driver license. Any time that a permittee's driver's license is suspended, revoked, or cancelled, the permittee shall immediately self-report said action to the MTLC and their license issued by the commission shall likewise be immediately suspended, revoked, or cancelled. The license issued by the commission shall immediately be surrendered to the MTLC until such time as their driver's license is reinstated.

L. All persons engaged in the act of booting must wear a uniform which contains the name and/or logo of the booting company on the right or left chest of the shirt or jacket the employee is wearing. (Ord. BL2022-1213 §§ 4—6, 2022; Ord. BL2017-728 § 2, 2017; Ord. BL2009-525 § 2, 2009)

6.81.090 Licensee responsibilities—Compliance required.

A. No licensee shall permit any of its employees while engaged in the practice of booting to engage in activities or practices contrary to the public safety or welfare or contrary to the proper discharge of their duties in the course of their employment.

B. Each licensee shall be responsible for its employees complying with the laws of the metropolitan government, the State of Tennessee, the United States and the rules and regulations of the commission which reflect on the fitness of such employees to be employed in the operation of a booting service, and violations by the employees of a licensee shall be cause for revocation, suspension, probation or failure to renew the license of the licensee and the permits of the employees. (Ord. BL2009-525 § 2, 2009)

Article IV. Equipment and Operation

6.81.100 Vehicle requirements and damages.

A. Vehicles being used to assist in the operation of a booting service must display on each side, in plain view, the name of the booting service, and the telephone number of the booting service. The lettering shall be in a contrasting color to the color of the vehicle, or if a vehicle magnet is used, the lettering shall be in a contrasting color to the color of the magnet. The lettering shall be at least 1.5 inches in height.

B. A booting service must maintain a 24-hour a day, 365 days per year phone number that is staffed by a live operator to communicate immediately with a driver of a vehicle that has been booted by the booting service.

C. In the event that the application of a booting device damages a vehicle, then the booting service must pay the cost of repairs for that damage.

D. It shall be unlawful for either a booting service to boot vehicles on private property without having a valid written contract specifically for such services entered into with the private property owner, lawful lessee, managing agent or other person in control of the property. (Ord. BL2022-1213 § 7, 2022; Ord. BL2009-525 § 2, 2009)

6.81.110 Minimum equipment required.

A. Each vehicle used by a booting company shall be equipped with and have available at all times all of the equipment which the commission may reasonably require by its rules and regulations to ensure the safe operation of the booting service.

B. At the time of application for a license, the commission shall furnish to the applicant in writing a list of such equipment as the commission deems to be the minimum requirements for each vehicle and the licensee shall carry and have available at all times and in good working order in each of his/her vehicles such required equipment until a new list is furnished the licensee by the commission. The commission may furnish such new or revised list of such equipment from time to time as it deems necessary, and each licensee

after being furnished same shall comply therewith. (Ord. BL2009-525 § 2, 2009)

6.81.120 Operating records.

Each licensee shall maintain or cause to be maintained such records as the commission may, by rules and regulations, require for the purpose of enforcing the provisions of this chapter and the rules and regulations of the commission. (Ord. BL2009-525 § 2, 2009)

6.81.130 Notices at time booting device is installed.

A. A notice must be affixed using a temporary adhesive to the driver side window of every vehicle for which a booting device is installed.

B. Such notice shall measure not less than five inches in width and seven inches in height, and shall include the following information:

1. A warning not to move the vehicle. Such warning shall expressly state that movement of the vehicle may cause damage to the vehicle.

2. The reason for and time of immobilization.

3. The name of the booting service and a twenty-four hour telephone number at which the booting service can be reached.

4. The fee required for removal of the booting device.

5. A reference to Chapter 6.81 of the Metropolitan Code regulating the booting of vehicles. (Ord. BL2022-1213 § 8, 2022; Ord. BL2009-525 § 2, 2009)

6.81.140 Booting fees.

The maximum fee which may be charged for boot removal shall not exceed seventy-five dollars. The commission shall have the authority to adopt future increases in this fee. (Ord. BL2022-1213 § 9, 2022; Ord. BL2009-525 § 2, 2009)

6.81.150 Receipts.

The booting service shall render to the operator or owner of any vehicle for which a boot is removed a receipt for the amount charged, either by a mechanically printed receipt or by a specially prepared receipt on which shall be the name of the licensee, amount of charges and appropriate taxes, date of transaction and the type of vehicle booted. The licensee shall keep a copy of such receipts which shall be made available to the commission or its inspectors at all times. (Ord. BL2022-1213 § 10, 2022; Ord. BL2009-525 § 2, 2009)

6.81.160 Disposition of revenue.

A. The commission shall remit to the metropolitan treasurer all fees and other revenues derived from the license and permit fees collected under the provisions of this chapter and the metropolitan treasurer shall maintain an account thereof.

B. Such fees shall be remitted as required by the director of finance and the amounts so collected shall be used to defray the expenses of the commission including, but not limited to, the payment of the salaries of the commission's inspectors.

C. Payment therefrom shall be upon requisition or voucher executed by a person or persons authorized by the director of finance. (Ord. BL2009-525 § 2, 2009)

6.81.170 Prohibited acts.

It is declared that the following acts are prohibited and unlawful and the license or permit of any person and/or company doing any such acts or failing to comply with the provisions of this chapter may be revoked, suspended, placed on probation or not renewed by the MTLC director or the transportation licensing commission:

A. To tow a booted vehicle from any private property if the boot has been on the vehicle less than twenty-four continuous hours. After twenty-four hours, the vehicle may be towed, but only if properly authorized by the private property owner or lessee, which authority may not be delegated by the property owner or lessee to a third person or entity.

B. To refuse to remove a booting device because the device is damaged.

C. To fail to respond and arrive to a booted vehicle to remove the boot within one hour of being contacted by the owner or operator or to fail to remove the boot within one hour after full boot removal payment has been received.

D. For a booting service to make any payment to an owner, employee, agent, or person in possession of a commercial parking lot in excess of the reasonable and customary parking fee ordinarily charged by the parking lot thereon.

E. For any booting service to be licensed hereunder if that booting service is also engaged in the business of parking lot ownership or owns the property where booting services are being performed.

F. For a person or company to engage in the business of providing booting services within the area of the metropolitan government without first obtaining and keeping in force a license from the commission to operate a booting service. (Ord. BL2022-1213 § 11, 2022; Ord. BL2017-728 § 3, 2017; Ord. BL2013-476 § 4, 2013; Ord. BL2009-525 § 2, 2009)

6.81.180 Signage—Unpaid parking violations.

A. No boot shall be placed on a vehicle parked on private property unless a permanently affixed sign measuring not less than twenty-four inches in height and eighteen inches in width is posted on the property. Signs shall be located at each designated entrance to a parking lot or parking area where parking prohibitions are to be effective. Where there is no designated entrance, such signs shall be erected so as to be clearly visible from each and every parking space. The bottom of such signs located at a designated entrance to a parking lot shall be at least four feet above the site grade. Where there is no designated entrance, the bottom of such signs shall be six feet above site grade.
Such signs shall include the following information in red lettering on a white background:

Parking Policy Strictly Enforced
Violators will be Booted at Owner's Expense
$75.00 Maximum Booting Fee
[Name and 24-hour phone number of booting company].

B. Once signs have been installed in a parking lot or area, the booting service must email photos of each of the signs in the lot to the MTLC. The photos must clearly show the entrance to the parking lot or parking area. After receipt of the photos, the MTLC will schedule an inspection and the MTLC may grant a conditional approval via email, which can be revoked if, upon inspection, the signs are not in compliance. If the MTLC finds that the signs are not in compliance, the company must correct the signs within forty-eight hours.

C. If a boot is placed on a vehicle parked on private property for failure to pay the required parking charge, the owner or operator of the private property may require the owner of the vehicle to pay the applicable booting removal fee plus all unpaid parking fines in order to have the boot removed. (Amdt. 1 to Ord. BL2022-1213 § 12, 2022; Ord. BL2022-1213 § 12, 2022; Ord. BL2013-476 § 5, 2013; Ord. BL2010-749 § 3, 2010; Amdt. 1 to Ord. BL2009-525 § 2, 2009; Ord. BL2009-525 § 2, 2009)

Article V. Hearings

6.81.190 Hearing for applicant for license.

A. Prior to the issuance of any license provided for in this chapter, the commission shall hold a public hearing for the applicant after giving the applicant at least a fifteen-day notice of the time and place of such hearing.

B. The commission is empowered to make all such rules and regulations which it considers necessary and proper for any hearings provided for by this chapter. (Ord. BL2009-525 § 2, 2009)

6.81.200 Hearing before suspension, revocation or probation and after refusal to renew license or permit.

A. Upon the MTLC director becoming aware of a failure of a booting service to comply with any provision of this chapter or the MTLC rules and regulations, the MTLC director shall send notice of the deficiency to the booting service. Once a booting service has been notified of any deficiency, other than violations of Section 6.81.170, by the MTLC director, the booting service shall address said deficiency within five business days of receipt of notice from the MTLC director. If the booting service fails to address the deficiency within five business days, the MTLC director is authorized to suspend, revoke, otherwise restrict, or not renew any license or permit issued under this article for failing or refusing to comply with the provisions of this chapter or the MTLC rules and regulations. For violations of Section 6.81.170, the booting service must correct the violation immediately.

B. No action to suspend, revoke or place on probation any license or permit provided for in this chapter shall be taken by the commission or the MTLC director, except in emergency situations, until the licensee or permittee has been furnished a written statement of the Metropolitan Code violations and a notice of the time and place of the hearing to be held thereon. The furnishing of such notice and the reasons for the commission's or MTLC director's proposed action shall be given to such licensee or permittee at least fifteen days prior to the date of the hearing. If at such hearing, the commission finds the licensee or permittee has violated the Metropolitan Code or any provision of Section 6.81, it may suspend, revoke or place on probation the license or permit previously issued by it.

C. Upon the failure to renew any license or permit, the commission or MTLC director shall so notify the licensee or permittee, giving the licensee or permittee the reasons for its failure to renew the license or permit. The licensee or permittee may by a simple written request addressed to the commission, ask for and request a hearing by the commission as to the reasons for the commission's or MTLC director's failure to renew the license or permit. The commission shall then grant the licensee or permittee a hearing and shall fix the time and place for such hearing within thirty days and shall promptly notify the licensee or permittee of the time and

place. It shall be incumbent upon the commission at the hearing to substantiate the reasons for its failure to renew the license or permit.

D. At any hearing provided for in this chapter, the licensee or permittee shall have the right to be represented by an attorney of his/her choice, to present evidence, to have witnesses testify under oath on his behalf, and the strict rules of evidence shall not apply. (Ord. BL2022-1213 § 13, 2022; Ord. BL2013-476 § 6, 2013; Ord. BL2009-525 § 2, 2009)

Chapter 6.82

BUSINESS TRANSACTIONS AFTER A NATURAL DISASTER

Sections:

6.82.010	**Prices of goods and services to remain the same after state of emergency.**
6.82.020	**Exception.**
6.82.030	**Violation—Prohibited.**

6.82.010 Prices of goods and services to remain the same after state of emergency.

The sale or offering for sale of any goods, services or materials at prices in excess of those prices for the same or similar goods, services or materials that were in existence prior to the date of a natural disaster that results in the declaration of a state of emergency by the Governor of the State of Tennessee or by the mayor shall be and the same is hereby prohibited for ninety days following the date of such natural disaster. (Ord. 94-967 § 1, 1994)

6.82.020 Exception.

Any person initially doing business after the date of a natural disaster as described in Section 6.82.010 and any person that can demonstrate that their cost of the particular goods, services or materials have increased since the date of the natural disaster as described in Section 6.82.010 shall be exempt from the provisions of this chapter, provided that the prices at which they offer to sell goods, services or materials is not more than the reasonable price prior to the date of such natural disaster and any increased cost can be demonstrated independently from the effects of such natural disaster. (Ord. 94-967 § 2, 1994)

6.82.030 Violation—Penalty.

Any violation of the provisions of this chapter shall be punished by a fine not to exceed five hundred dollars. (Ord. 94-967 § 3, 1994)

Division II. Urban Services District Regulations

Chapter 6.84

AUCTIONS AND AUCTIONEERS*

***State law reference—**Auctioneers, T.C.A. § 62-19-101 et seq.

Sections:

6.84.010	**Selling at auction defined.**
6.84.020	**Inventory and affidavit.**
6.84.030	**Written description of articles.**
6.84.040	**Prohibited auction hours.**
6.84.050	**False statements.**
6.84.060	**Substitution of articles—Penalty.**
6.84.070	**Misrepresentation by auctioneer—Penalty.**
6.84.080	**Prohibited bidding practices.**
6.84.090	**Exceptions to chapter requirements.**

6.84.010 Selling at auction defined.

"Selling at auction" means the offering for sale or selling of such property by the method known as "down hill selling" by which is meant first offering any article at a higher price and then offering the same at successive lower prices until a bidder is secured.

"Selling at auction" also means the offering for sale or selling of such property to the highest bidder. (Prior code § 9-2-1)

6.84.020 Inventory and affidavit.

A. No person shall sell or offer for sale by auction, a stock of merchandise by advertisement, sign, poster or otherwise, until such person has filed in the office of the metropolitan clerk an inventory of such stock of merchandise duly supported by affidavit, as to the quantity, quality, kind or grade of each item thereof.

B. To such inventory there shall be attached an affidavit that such inventory is in all respects true and correct. In case of an individual, such affidavit shall be made by him as such; in case of a firm, it shall be made by one of the partners; and in case of a corporation, it shall be made by the president, general manager, secretary or treasurer.

C. Such inventory and affidavit when so made shall be kept on file as a part of public records kept by the metropolitan clerk. (Prior code § 9-2-5)

6.84.030 Written description of articles.

A. No person shall offer for sale or sell at public auction any diamonds or other precious or semiprecious stones or imitations thereof, watches, clocks, jewelry, glassware or bric-a-brac, unless there is securely attached to each of such articles a tag or label upon which shall be plainly written or printed, in English, a true and correct statement of the kind and quality of metal of which the article is made or composed and the percentage of purity or karat of such metal. In case such articles are plated or overlaid, such tag or label shall contain a true statement of the kind of material or metal covered. When precious or semiprecious stones are offered for sale or sold, such written statement shall set forth the true name, weight, quality and fineness of such stones, and imitations shall be described as such. When watches or clocks are sold, the true names of the manufacturers shall be stated in writing and no part of the movement or mechanism thereof shall be substituted or contain false and misleading names or trademarks, neither shall secondhand or old movements be offered for sale in new cases without a true statement to that effect.

B. Such tag or label shall be treated as a true and correct description of the article sold, and a representation or warranty thereof and shall remain securely attached thereto until the article shall be delivered to the purchaser. (Prior code § 9-2-7)

6.84.040 Prohibited auction hours.

No person shall sell any diamonds, watches, clocks, jewelry, silverware, oriental rugs or like articles at public auction between the hours of six p.m. and eight a.m. (Prior code § 9-2-6)

6.84.050 False statements.

No auctioneer of personal property shall, with intent to induce any person to purchase the same, make any false representation or statement as to the ownership or the quality of the property offered for sale or as to the property or circumstances of the owner of such property, or sell goods or offer for sale at auction or advertise for sale any goods, wares or merchandise, falsely representing or pretending such goods, wares or merchandise to be in whole or in part a bankrupt or insolvent stock or damaged goods or goods saved from a fire, or make any false statements as to the purchase, history or character of such goods, wares or merchandise. (Prior code § 9-2-4)

6.84.060 Substitution of articles—Penalty.

A. No auctioneer of personal property shall offer for sale at public auction any article and induce its purchase by any bid and thereafter substitute any article in lieu of that offered and purchased by the bidder.

B. Upon conviction of a second offense, the license of such auctioneer shall be revoked. (Prior code § 9-2-3)

6.84.070 Misrepresentation by auctioneer—Penalty.

A. No auctioneer of personal property shall knowingly or negligently misrepresent the quantity or quality of any article at any auction sale.

B. Upon conviction of a second offense, the license of such auctioneer shall be revoked and another such license shall not be issued to him within one year. (Prior code § 9-2-2)

6.84.080 Prohibited bidding practices.

It is unlawful for any person to act or to employ another to act as bybidder or what is commonly known as "capper" or "booster" at any auction sale of diamonds, watches, jewelry, silverware, etc., or to make or accept any false or misleading bids or to pretend to buy or sell any such article sold or offered for sale at any such auction. (Prior code § 9-2-8)

6.84.090 Exceptions to chapter requirements.

The provisions of this chapter shall not extend to judicial sales, sales under executions, executor or administrators' sales, sales under the terms of a mortgage or deed of trust, sales by public officers in the performance of their official duties or to any auction held for a charitable or benevolent purpose. (Prior code § 9-2-9)

Chapter 6.88

AUCTION SALES OF AUTOMOBILES OR JEWELRY

Sections:

6.88.010	**Purpose.**
6.88.020	**Compliance with provisions.**
6.88.030	**Exceptions.**
6.88.040	**Permit—Application.**
6.88.050	**Permit—Bond required.**
6.88.060	**Permit—Issuance, form and fee.**
6.88.070	**Display of application and permit.**
6.88.080	**Reading of application and permit.**
6.88.090	**Prohibited acts.**

6.88.010 Purpose.

The purpose of this chapter is to protect the public or purchasers at auction sales where automobiles or jewelry are offered for sale, and also bona fide merchants who are regularly engaged in the sale of automobiles and jewelry. (Prior code § 9-2-12)

6.88.020 Compliance with provisions.

It is unlawful for any person, directly or indirectly, through agents or otherwise, to sell or offer for sale at public auction within the urban services district any automobile or jewelry, unless the provisions of this chapter are complied with. (Prior code § 9-2-10)

6.88.030 Exceptions.

This chapter shall have no application to auction sales conducted under and by virtue of legal process, decree of court, or under and by virtue of a bona fide mortgage or deed of trust, pledge, or where the property is required by law to be sold at public outcry. (Prior code § 9-2-11)

6.88.040 Permit—Application.

A. Any person desiring to conduct an auction sale to offer for sale thereat any jewelry or automobiles, shall first file a written application for a permit therefor with the metropolitan collections officer.

B. The application for a permit shall contain the following:

1. The name, address and occupation or business of the person desiring to conduct such auction;

2. The name, address and occupation or business of the person for whom the auction is to be conducted, if other than the applicant;

3. The name and address of the owner of the merchandise to be offered at such auction, with a true and complete itemized inventory of the property to be offered for sale, showing the cost price thereof and the source of title thereto. Where the applicant for the permit is to conduct an auction sale of automobiles, the make of each automobile, including the motor and serial numbers thereof, shall be included in the application;

4. The place and hour of such auction, with an estimate of the duration thereof;

5. The name and address of the auctioneer who will call or cry the auction.

C. The application for a permit shall be sworn to by the applicant before some person authorized by law to administer oaths. (Prior code § 9-2-13)

6.88.050 Permit—Bond required.

The applicant for such permit shall also file with the metropolitan collections officer, at the same time the application is made, a bond in the penal sum of three thousand dollars, with a surety company authorized to do business in the state as surety, in the following form:

State of Tennessee,

Metropolitan Government of Nashville and Davidson County.

Know All Men By These Presents:

That we, _____, as principal, and _____, as surety, as held and firmly bound unto the State of Tennessee in the penal sum of three thousand ($3,000.00) dollars, for the payment whereof will and truly to be made, we bind ourselves respectively and our heirs and administrators.

The condition of this bond is such that, whereas under an ordinance of the Metropolitan Government of Nashville and Davidson County it is necessary, in order to lawfully conduct an auction sale where automobiles or jewelry are sold, to obtain a permit from the metropolitan collections officer so to do, and for the auction to be conducted as provided by the terms of said ordinance, and the undersigned principal intends to conduct an auction of (here state whether automobiles or jewelry) on the _____day of _____, 19____, in the Urban Services District of the Metropolitan Government of Nashville and Davidson County;

Now, if said auction sale is conducted as provided by said ordinance, this obligation shall be null and void, but otherwise shall remain in full force and effect.

It is expressly understood that this bond, while made payable to the State of Tennessee, is for the use and benefit of all persons suffering loss or damage by

reason of the violation of said ordinance by the above named principal, and any person or persons purchasing at said auction sale, suffering loss or damage by reason of the violation of said ordinance, may maintain an action against the principal and the surety on this bond, to recover for such loss or damage.

Witness our hands on this _____ day of _____, 19____.

_____
Principal

_____
Surety

Approved:

_____
Metropolitan Collections Officer
(Prior code § 9-2-14)

6.88.060 Permit—Issuance, form and fee.

A. After the application for a permit in the manner and form as provided in Section 6.88.040 and the bond provided for in Section 6.88.050 have been filed and approved by the metropolitan collections officer, it shall then be the duty of the metropolitan collections officer to next ascertain if the applicant has paid all privilege taxes due the city to conduct such sale, and, in addition, the applicant will pay to the metropolitan government an amount equal to twice the amount fixed by law as a privilege tax for a transient merchant. If such taxes have been paid by the applicant, it shall then be the duty of the metropolitan collections officer to issue a permit to the applicant on the following form:

State of Tennessee,
Metropolitan Government of Nashville
and Davidson County.

The Metropolitan Government of Nashville and Davidson County hereby permits _____ to conduct an auction sale at _____ in the Urban Services District of said Metropolitan Government, between the dates of _____ and _____, 19____, in accordance with the application of _____ for this permit, a copy of which application for a permit is attached hereto and made a part hereof.

This _____ day of _____, 19____.

_____
Metropolitan Collections Officer

B. The metropolitan collections officer shall attach to the permit a copy of the application made therefor.

C. Such a permit shall authorize the holder thereof to conduct an auction for six consecutive days, Sundays and holidays excepted; provided, that a permit shall not be issued to the same applicant, or for the same business, more than once in any period of twelve months; provided further, that no permit shall be issued for any auction sale involving the sale of any articles mentioned in Section 6.84.030 to be held during the month of December in any year.

D. The applicant shall pay a fee to the metropolitan collections officer of five dollars for the issuance of the permit, which sum shall by the metropolitan collections officer be paid into the general fund of the metropolitan government. (Prior code § 9-2-15)

6.88.070 Display of application and permit.

Each person holding a permit under this chapter shall display at the auction sale the application for such permit, and the permit, at the place where such auction sale is conducted, continuously during sale. (Prior code § 9-2-17)

6.88.080 Reading of application and permit.

At an auction sale where automobiles or jewelry are sold, it shall be the duty of the auctioneer conducting the auction to read to those assembled, before any property is offered for sale, the application made for the permit, and the permit authorizing the sale. (Prior code § 9-2-16)

6.88.090 Prohibited acts.

It is unlawful:

A. For any auctioneer at such sale to fail to read the application and permit to those assembled, before commencing the sale of the property;

B. For any auctioneer or others interested in the sale to offer for sale at the auction any property other than that described in the application;

C. For any auctioneer to knowingly misrepresent the quality or value of any article offered for sale at such auction sale;

D. For any auctioneer to make any false statement of misrepresentation as to the ownership of, or the character or circumstances of the owner or pretended owner of, such property, for the purpose of inducing the sale thereof, or to make any false statement or misrepresentation as to the purchase, history or character of such property;

E. For any auctioneer or person conducting such auction sale to represent or sell as new or unused property any secondhand or used merchandise;

F. For any person conducting an auction sale under this chapter to substitute any article in lieu of that described in the application for a permit and offered to and purchased by the bidder;

G. For any person having a permit under this chapter to alter, transfer, lend, sell or rent out his permit, or to use any permit not his own;

H. For any person to falsely represent himself to hold a permit under this chapter or to wrongfully use a permit issued hereunder;

I. To conduct an auction sale covered by this chapter without a permit to do so, or after the expiration of the permit issued;

J. For any auctioneer or person conducting an auction covered by this chapter to sell, or offer for sale, at such auction any article not specifically listed in the inventory of application for a permit. (Prior code § 9-2-18)

Chapter 6.92

BANKRUPTCY, CLOSE-OUT AND SIMILAR SALES

Sections:

6.92.010	**License required—Fee.**
6.92.020	**Exceptions to chapter applicability.**
6.92.030	**Conditions for conduct of sales.**
6.92.040	**Statement, inventory and affidavit.**
6.92.050	**Records—Changing items during sales.**
6.92.060	**Cancellation of license.**

6.92.010 License required—Fee.

A. It is unlawful for any person, in the urban services district, to advertise or conduct any sale of goods, wares or merchandise at retail that is represented as bankrupt, insolvent, assignee, adjuster, trustee, executor, administrator, receiver or manufacturer's close-out, liquidation, fire or water damage sale, or any other sale which, by representation or advertising, is intended to lead the public to believe that the person conducting such sale is selling out the merchandise at a sacrifice price without first obtaining and filing with the Davidson County clerk a "closing-out sale license."

B. The fee for such license shall be twenty-five dollars for each day such sale is conducted. The license fee herein set out shall not be assessed against any bona fide merchant who has been engaged in business in the urban services district for at least two years prior to time of such sale and who has paid his privilege and ad valorem taxes during such time, provided such sale is not conducted for more than a period of forty-five days in any one year. (Ord. 93-791 § 1, 1993; prior code § 24-2-18)

6.92.020 Exceptions to chapter applicability.

The provisions of this chapter shall not be applicable to trustees in bankruptcy or other public officers acting under judicial process. (Prior code § 24-2-23)

6.92.030 Conditions for conduct of sales.

It is unlawful for any person to conduct a sale as set out in Section 6.92.010 unless such goods, wares or merchandise are a bona fide stock as represented, and the sale is being conducted for the purpose set out in the representation and advertisement. (Prior code § 24-2-19)

6.92.040 Statement, inventory and affidavit.

As a condition precedent to the obtaining of the license required by Section 6.92.010, there shall be filed in the office of the Davidson County clerk, with the application for the license, a statement showing all parties who have any interest in such sale and an accurate list of the stock of goods, wares and merchandise to be sold at such sale under such license, together with the wholesale price thereof and the prices paid by the seller, which inventory or list shall be signed by the person taking the license under affidavit that the information there given is personally known by the affiant to be true. (Ord. 93-791 § 2, 1993; prior code § 24-2-20)

6.92.050 Records—Changing items during sales.

It is unlawful to sell at any sale regulated by this chapter or to list any inventory required by this chapter any goods, wares or merchandise which are not in the stock of the business at the time the affidavit is made. It is unlawful to make any additions or replacements to such stock during the time of the sale and to fail, neglect or refuse to keep in writing or typewriting a true copy of every article sold, which records shall be filed with the Davidson County clerk. (Ord. 93-791 § 3, 1993; prior code § 24-2-21)

6.92.060 Cancellation of license.

If, at any time, the Davidson County clerk finds that the seller at any sale regulated by this chapter has violated any of the provisions of this article, he may cancel the license issued to such person. (Ord. 93-791 § 4, 1993; prior code § 24-2-22)

Chapter 6.100

PAWNBROKERS, SECONDHAND DEALERS AND JUNK DEALERS

Sections:

Article I. Pawnbrokers

6.100.010 Signs—License required.
6.100.020 Register requirements.
6.100.030 Daily reports—Inspection—Violation.
6.100.040 Time restrictions before resale.

Article II. Regulations for Specific Materials

6.100.050 Automobile dealers—Register, daily reports—Inspection.
6.100.060 Book sales—Reports—Inspection.
6.100.070 Bottle dealers—Register—Inspection—Purchases.
6.100.080 Jewelry—Register, daily reports—Inspection.
6.100.090 Metal items—Daily reports—Inspection.
6.100.100 Plumbing material—Authorized sellers—Register—Inspection.
6.100.110 Plumbing material—Daily reports—Inspection.

Article I. Pawnbrokers

6.100.010 Signs—License required.

It is unlawful for any person engaged in the sale or exchange of secondhand articles or any other business, to display any sign, device or subterfuge in or about his premises where such business is conducted, resembling the ordinary sign commonly used by pawnbrokers, unless such person shall have first secured from the metropolitan government and has in his possession a license to engage in a general pawnbroking business. (Prior code § 31-2-8)

6.100.020 Register requirements.

A. Pawnbrokers shall keep a book in which every article taken by them in pawn and every secondhand article purchased by them shall be registered, and in which shall be given as minute a description of each article as is possible. The maker's name and the number of all watches received by them shall be kept in such book, and the name, color and residence of each individual pawning or selling such articles.

B. The register shall at all times be kept at the place of business of every pawnbroker, and all city officers having police power shall, at all times, be allowed free access to the same, and the brokers shall give to the officers any information in their power concerning such articles and the persons selling or pawning the same. (Prior code § 31-2-9)

6.100.030 Daily reports—Inspection—Violation.

A. All pawnbrokers doing business in the urban services district shall furnish to the chief of police daily reports, at his office, showing fully the name, age, sex, color, residence and general description of each person who shall have pawned, pledged or sold any article during the preceding day, together with a full description of the article pawned, pledged or sold, including the number on each article bearing a number, and in the case of watches, both the number in the case and the number on the works.

B. In addition to furnishing to the chief of police such daily reports, pawnbrokers shall keep duplicates of the reports in a well-bound book, which book at all times shall be subject to the inspection of any member of the police department.

C. When any pawnbroker shall fail, refuse or neglect to furnish to the chief of police daily reports required by this section or shall fail or refuse to keep duplicates of the reports for the inspection of the members of the police force, each day that such neglect or refusal shall continue shall constitute a separate offense. (Prior code § 31-2-10)

6.100.040 Time restrictions before resale.

Pawnbrokers, secondhand dealers and junk dealers shall retain possession at their place of business, of all goods, wares or merchandise purchased by them for a period of fifteen days before a resale or exchange thereof; provided, that a resale or exchange may be allowed to be made before the expiration of the fifteen-day period upon obtaining a written permit from the chief of police. This section shall not apply to used books sold in secondhand bookstores. (Amdt. 1 to Ord. BL2007-1388 § 1, 2007; Ord. BL2007-1388 § 2, 2007; prior code § 31-2-11)

Article II. Regulations for Specific Materials

6.100.050 Automobile dealers—Register, daily reports—Inspection.

A. It shall be the duty of all persons dealing in the purchase, sale or exchange of secondhand automobiles and motor-driven vehicles or who purchase secondhand

automobiles or auto-driven vehicles or supplies or parts of automobiles, as an occupation, to keep a book in which every article received by them in the course of their business shall be registered and in which shall be given a minute description of the same. The maker's name, and the name, age, sex, color, residence and general description of each and every individual selling or exchanging such automobile or motor driven vehicle or supplies and parts of automobiles above designated, and the description and identification of such articles and persons selling the same shall be entered in the book or register of such dealer.

B. The register shall at all times be kept at the place of business of such dealer. Every member of the police department shall be allowed free access to such register or book. The dealer shall give police officers of the metropolitan government all information within their knowledge concerning such articles and the persons selling or exchanging the same.

C. All dealers engaged in the business described in subsection A of this section shall furnish the chief of police daily reports at his office showing fully the name, age, sex, color and general description of each person who shall have sold or exchanged any secondhand article or vehicle above designated, during the preceding day, and a full description of the article sold or exchanged by such person, including the number and make of such article or vehicle where ascertainable, and the day and hour of the transaction.

D. Such dealers shall be required to keep duplicates of such reports in a well-bound book or register, which shall be subject to inspection by any member of the police department. (Prior code § 31-2-6)

6.100.060 Book sales—Reports—Inspection.

A. It is unlawful for any dealer in secondhand books to buy, sell or exchange any book belonging to or containing the stamp or name, either on the inside of the front or back cover thereof, of the board of education, of any private or parochial school, of the public library or of any person operating a circulating or lending library. The possession of any such book containing a stamp or name of the board of education, of any private or parochial school, of the public library or of any person operating a circulating or lending library that has been mutilated or contains evidence of the stamp or name having been erased or removed shall be prima facie evidence of a violation of this section.

B. All dealers in secondhand books shall retain records of all secondhand books of every kind and character purchased whatsoever. These records shall include a general description of the book, and the name and address, age, sex, nationality and general description of the person from whom such purchase was made. These records shall be open to the police department to review at any time, and these records must be updated on a daily basis. (Ord. BL2007-1388 § 2, 2007; prior code § 31-2-7)

6.100.070 Bottle dealers—Register—Inspection—Purchases.

A. All secondhand bottle dealers in the urban services district, by which is meant all persons who shall, as a part of their business or occupation, buy, sell or trade in empty bottles which have theretofore been used, shall keep a book in which they shall promptly enter the names of all persons from whom they buy or get any such empty bottles, followed by the date of purchase, the amount paid therefor, the number of such bottles and, if the same bear in the glass the name of the original user, such name shall be indicated in a description of the bottles purchased, the entries to be made in chronological order from day to day as the business is transacted.

B. Such book shall at all times be open to inspection of the police or other officer or any person who may desire to see the same, and shall be in good faith kept and preserved by such dealers for the convenient inspection aforesaid.

C. No such buyer or dealer in secondhand bottles shall purchase or receive in any way any such bottles from any minor under sixteen years of age, whether the same is obtained directly from such minor or through or by the aid of such minor, the purpose of this section being to make it unlawful for anyone to deal with such minor in such article or business, or to allow any such minor to be connected with the same.

D. The dealers or buyers aforesaid shall only purchase such bottles from persons who are personally known to them, or of whose identification they are certain, and shall promptly give to any officer or other person making inquiries such information as will enable the seller to be identified. (Prior code § 31-2-1)

6.100.080 Jewelry—Register, daily reports—Inspection.

A. It shall be the duty of all persons dealing in the purchase, sale or exchange of secondhand jewelry, watches, clocks, diamonds, cutlery, wearing apparel, old gold,

silver, platinum or any other secondhand manufactured articles, composed wholly or in part of gold, silver or platinum, to keep a book in which every article received by them in the course of their business shall be registered, and in which shall be given as minute a description of every article as it is possible, and the maker's name and number of all watches so received by them, and the name, age, sex, color, residence and general description of each and every individual selling or exchanging such articles, shall be taken and entered in the register.

B. The register shall at all times be kept at the place of business of every person engaging in the business aforesaid. Every member of the police department shall be allowed free access to the register and the person shall give to such officers all information in his power concerning such articles and all persons selling or exchanging the same.

C. All persons, engaging in business, as described in the preceding paragraph, shall furnish to the chief of police daily reports at his office, showing fully the name, age, sex, color, residence and general description of each person who shall have sold or exchanged any secondhand article during the preceding day, together with a full description of the articles sold or exchanged by such person, including the number of each article bearing a number, and in the case of watches, both the number in the case and the number of the works, and the day and hour of the transaction.

D. Every person engaging in such business shall keep duplicates of such reports, in a well-bound book or register, which book or register shall at all times be subject to the inspection of any member of the police department. (Prior code § 31-2-5)

6.100.090 Metal items—Daily reports—Inspection.

A. All junk dealers or dealers in secondhand lead pipe, fixtures, grates, grate fronts, fenders, boilers, old iron, copper and other metal house furnishing and plumbing material, doing business in the urban services district, shall furnish to the chief of police daily reports at his office, showing fully the name, age, sex, color, residence and other description of each person who shall have sold, pawned or pledged any secondhand metal, lead pipe, fixtures, grates, grate fronts, fenders, boilers, old iron, copper and other metal house furnishings and plumbing material during the preceding day, together with a full description of the article so sold, pawned or pledged, and the day and hour of the purchase, so as to enable the chief of police to identify the articles as well as the person dealing with such junk shop dealer.

B. In addition to furnishing the chief of police such daily reports, such junk shop dealer shall keep a duplicate of such reports in a well-bound book, which book shall be subject to the inspection of any member of the police department. (Prior code § 31-2-2)

6.100.100 Plumbing material—Authorized sellers—Register—Inspection.

A. No keeper of a junk shop or a secondhand dealer shall purchase from anyone, except from plumbers holding licenses as such from the metropolitan government, licensed peddlers or the owners of buildings from which the material is taken, any lead pipe, faucets, grates, grate fronts, fenders, boilers or other plumbing material.

B. Every keeper of a junk shop and secondhand dealer shall provide and keep a book in which shall be fairly written, at the time of every purchase of such articles, a description of the articles so purchased, the name and residence of the person from whom such purchase was made and the day and hour of the purchase.

C. Every such book shall at all times be open to the inspection of any metropolitan officer having police powers, and the book shall be kept at the place of business of the junk shop keeper or secondhand dealers. (Prior code § 31-2-3)

6.100.110 Plumbing material—Daily reports—Inspection.

A. All licensed peddlers buying and selling lead pipe, fixtures, grates, grate fronts, fenders, boilers, old iron, copper and other metal house furnishings and plumbing material, doing business in the urban services district, shall furnish to the chief of police daily reports, at his office, showing fully the name, age, sex, color, residence and other description of each person who has sold, pawned or pledged any secondhand metal, lead pipe, fixtures, grates, grate fronts, fenders, boilers, old iron, copper and other metal house furnishings and plumbing material during the preceding day to such licensed peddler, together with a full description of the article so sold, pawned or pledged and the day and hour of the purchase, so as to enable the chief of police to identify the articles as well as the person selling such junk to such licensed peddler.

B. In addition to furnishing the chief of police daily reports, such licensed peddler shall keep a duplicate of the reports in a well-bound book, which book shall be subject to inspection by any member of the police department. (Prior code § 31-2-4)

Chapter 6.104

RESERVED*

*Editor's note—Ord. BL2023-1647 § 1, passed Feb. 7, 2023, repealed Ch. 6.104, §§ 6.104.010—6.104.040, which pertained to produce peddlers and derived from prior Code §§ 23-2-1—23-2-4; Ord. 95-1329 § 2 (part), 1995.

Title 7

ALCOHOLIC BEVERAGES

Chapters:

Division I. General Regulations

7.04 Beer Permit Board

7.08 Beer and Alcoholic Beverages of Less than Eight Percent

Division II. Urban Services District

7.12 Alcoholic Beverage Wholesalers

7.16 Alcoholic Beverage Regulations

7.20 Beer and Alcoholic Beverages of Less than Eight Percent

7.24 Alcoholic Beverage Use Restrictions

Division I. General Regulations

Chapter 7.04

BEER PERMIT BOARD

Sections:

7.04.010	**Established.**
7.04.020	**Membership—Terms.**
7.04.030	**Election of officers—Term.**
7.04.040	**Meetings—Quorum required—Minutes and transcript.**
7.04.050	**Powers and duties.**
7.04.060	**Metropolitan beer permit inspectors—Authority.**

7.04.010 Established.

A beer permit board is created and designated the metropolitan beer permit board. (Prior code § 5-1-1)

7.04.020 Membership—Terms.

The metropolitan beer permit board shall consist of seven members. Four members are to be appointed by the mayor and approved by the metropolitan council. Three members are to be elected by a majority vote of the whole membership of the metropolitan council. Said members shall serve terms of four years each. Any vacancy other than the expiration of terms shall be filled for the unexpired term. The members presently constituting the metropolitan beer permit board shall succeed to the rights, powers, duties and obligations of the board subject to the Charter as authorized by this section. (Ord. BL2022-1528 § 10, 2023; Ord. 93-582 § 1, 1993)

7.04.030 Election of officers—Term.

The metropolitan beer permit board shall organize by the election of a chairman and a vice-chairman, who shall serve for a period of one year or until a successor shall have been chosen. (Prior code § 5-1-3)

7.04.040 Meetings—Quorum required—Minutes and transcript.

A. The metropolitan beer permit board shall hold two regular meetings each month at a time fixed by the board, and may hold such special meetings as may be necessary.

B. The attendance of at least a majority of the members of the board shall be required to constitute a quorum for the purpose of transacting business.

C. Minutes shall be kept of the meetings in permanent form and a record shall be kept of the action of the board with respect to every application for a permit. The concurring vote of a majority of the quorum shall be necessary to the granting and revoking of permits, or any other action by the board.

D. No transcript of the proceedings had before the board shall be in any form other than narrative, unless the board shall have been requested to provide for an exact copy of the testimony by an interested party at least twenty-four hours prior to a board meeting. The cost of an exact copy shall be borne by the person requesting the same. (Ord. 99-1794 § 1, 1999; prior code § 5-1-4)

7.04.050 Powers and duties.

A. The metropolitan beer permit board shall have jurisdiction of the licensing, regulating and controlling of the transportation, storage, sale, distribution, possession, receipt and/or manufacture of beer of an alcoholic content of not more than eight percent by weight or any other beverage of like alcoholic content, and shall constitute the sole administrative agency in the metropolitan government for the administration of all laws and ordinances relating to beer and like alcoholic beverages.

B. The metropolitan beer permit board may promulgate such bylaws, rules and regulations not inconsistent with state law, the Charter, or any ordinance, as it deems appropriate for the conducting of its business, copies of which shall be filed with the secretary of the board, and with the metropolitan clerk. (Ord. BL2017-584 § 1, 2017; prior code § 5-1-5)

7.04.060 Metropolitan beer permit inspectors—Authority.

The metropolitan beer permit board, subject to the civil service provisions of the Charter, is empowered to employ suitable persons as metropolitan beer permit inspectors. Such board shall prescribe the duties of such inspectors so as to enforce the applicable provisions of this title. (Prior code § 5-1-6)

Chapter 7.08

BEER AND ALCOHOLIC BEVERAGES OF LESS THAN EIGHT PERCENT*

Sections:

7.08.010 Definitions.

Article I. Wholesale and Retail Permits

7.08.020 Required.
7.08.030 Types of permits.
7.08.040 Application—Requirements and conditions.
7.08.050 Application—Submittal to police department before approval.
7.08.060 Fees—Application, renewal and change in management.
7.08.070 Conditions of permits.
7.08.080 Permit to state location where sale is authorized.
7.08.090 Location restrictions—Issuance of permit after revocation.
7.08.100 Retailer on-sale beer permit—Issuance requirements.
7.08.105 Caterer's permit—Issuance and notice requirements—Location restrictions.
7.08.110 Suspension and revocation of permit—Authority.
7.08.120 Draft beer defined—Off-premises consumption sales.
7.08.130 Prohibited acts—Generally.
7.08.140 Prohibited acts—By permit holders, agents or employees.
7.08.150 Suspension and revocation of permit—Civil penalty options.

Article II. General Regulations

7.08.160 Permitted activities.
7.08.170 Restrictions on sales by wholesalers.
7.08.180 Limitations on purchases.
7.08.190 Retail sales and storage—Permit location only.
7.08.200 Retail purchases and deliveries—Permit location only.
7.08.210 Resale prohibited when.
7.08.220 Return of beer permit upon termination of business.
7.08.230 Valid permit—Limitations.
7.08.240 Hotels and motels.

***Editor's note—**Ord. BL2017-584, § 2, adopted March 7, 2017, renamed Ch. 7.08 to read as herein set out. Formerly, said chapter was entitled "Beer and Alcoholic Beverages of Less than Five Percent."

State law reference—Beer and alcoholic beverages containing less than five percent alcohol, T.C.A. § 57-5-101 et seq.

7.08.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Authorized wholesaler" means a Tennessee wholesaler holding a valid wholesale permit.

"Beer" means products made from the normal alcoholic fermentation of malt or other cereal grains, sugar, or fruit ingredients used to make cider, and having an alcoholic content of not more than eight percent alcohol by weight and that do not contain distilled spirits or wine as defined in T.C.A. § 57-3-101; provided, that at least fifty-one percent of the overall alcoholic content by weight in the finished product is obtained by the fermentation of malt, other cereal grains, sugar, or fruit ingredients used to make cider, and no more than forty-nine percent of the overall alcoholic content by weight in the finished product is obtained by the addition of flavorings or other non-beverage ingredients containing alcohol.

"BYO beer" is beer as defined in chapter 7.08.010 of the Metropolitan Code that may be brought by a customer to be stored, opened and consumed on a mobile establishment with a mobile BYO beer permit.

"Caterer" means a business engaged in offering food and beverage service for a fee at various locations, which (1) operates a permanent catering hall on an exclusive basis; (2) has a complete and adequate commercial kitchen facility; and (3) is licensed as a caterer by the Tennessee Department of Health.

"Clerk" means any person working in a capacity to sell beer directly to consumers for off-premises consumption.

"Food truck" means a licensed vehicle or trailer that is capable of movement, is permanently enclosed and has a service window for the sale and service of meals that are regularly prepared in the vehicle or trailer.

"Food truck beer permit" means a retailer's on-sale permit issued by the metropolitan beer permit board to a food truck business. Food trucks selling or otherwise dispensing beer shall comply with portable barrier, signage and location requirements as may be promulgated by the beer permit board.

"Manufacturer" means any person who manufacturers beer on its premises.

"Manufacturer beer permit" means a permit issued by the metropolitan beer permit board to a beer manufacturer.

"Metropolitan arena" means a facility owned, operated or leased by a metropolitan government or any agency or commission thereof, or by a nongovernmental individual, corporation, partnership or other legal entity, with permanent seating capacity in excess of nine thousand persons, which is located within the DTC district or a CF zone district, which is designed primarily for indoor sporting, recreational, convention and/or entertainment use and may contain space and facilities for meetings, exhibitions, retail sales, retail food dispensing and restaurants and is a facility for which a license has been obtained from the Tennessee Alcoholic Beverage Commission permitting the sale of alcoholic beverages for on-premises consumption.

"Metropolitan beer permit board" or "board" means that administrative body organized and empowered under the authority of Tennessee Code Annotated, Title 57, Chapter 5 (T.C.A. § 57-5-101 et seq.) and created by Section 7.04.010 of this code.

"Minor" with respect to purchasing, consuming or possessing beer means any person who has not attained the age of twenty-one years.

"Mobile beer permit" means a retailer's on-sale permit issued by the metropolitan beer permit board to a business permitted as a mobile establishment. Mobile establishments may only sell beer for on-premise consumption. Beer may be sold sealed and opened by the purchaser. Beer may be sold, served and consumed in the main office, patio or on carriages or vehicles. Mobile establishments may also hold a mobile BYO beer permit. Notwithstanding any provision to the contrary in Titles 6 and 12, it shall be legal for mobile establishments with a mobile beer permit to stock, provide and sell beer, and for customers to possess and consume beer on a mobile establishment with a mobile beer permit, in compliance with this Title 7.

"Mobile BYO beer permit" means a permit issued by the metropolitan beer permit board that grants a mobile establishment the right to allow a customer to store, open and consume BYO beer on the mobile establishment. Notwithstanding any provision to the contrary in Titles 6 and 12, it shall be legal for customers to store, open and consume BYO beer on a mobile establishment with a mobile BYO beer permit, in compliance with this Title 7.

"Mobile establishment" means a business permitted as a pedal carriage, horse drawn carriage, or entertainment transportation vehicle by the metropolitan transportation licensing commission (MTLC) pursuant to Title 6 of the Metropolitan Code, or an affiliate of such business with common officers or LLC managers.

"On-premise beer permit" means a retailer's on-sale permit issued by the metropolitan beer permit board to a business with seating capacities for not less than sixteen persons, where meals or lunches are regularly served and where the premises are equipped with adequate toilet facilities and handwashing facilities, including hot and cold running water, for use by customers.

"Park" means a place or property either owned or maintained by the metropolitan government or by a utility district or an incorporated city, where persons regularly gather for recreational purposes or as spectators; provided, however, that such places or property shall not include those places and properties within the downtown code (DTC) district and core commercial frame district (CF) as defined in Title 17 of this code; provided, further, that such places or property shall not include parks within the boundary described herein as: beginning at the point of the intersection of Interstate 40 and Herman Street, then East to the intersection of Herman Street and 9th Ave. North, then north to the intersection of 9th Ave. North and Jefferson Street, then east to the intersection of Jefferson Street and Interstate 65, then south to the intersection of Interstate 65 and Interstate 40, then west to the point of beginning.

"Performing arts facility" means the following:

1. A facility owned by a governmental entity and administered by a not-for-profit corporation which facility is located within the downtown code (DTC) district or core commercial frame district (CF) as defined in Title 17 of this code and in which meetings, festivals, live theatrical, musical, and other performances and events are regularly presented; or

2. A facility possessing each of the following characteristics:

a. Is located on a tract or tracts of land having at least five contiguous acres;

b. Is located directly adjacent to property owned or leased by an airport authority created under state law;

c. Has an enclosed facility of at least twenty thousand square feet and one room with more than fourteen thousand square feet;

d. Has an exterior garden or gardens with sculpture; and

e. Is leased or owned by a not-for-profit corporation that qualifies under § 501(c)(3) of the Internal Revenue Code.

3. A facility totaling more than one hundred seventy-five thousand square feet in size that is owned by a not-for-profit corporation, is located within the downtown code (DTC) district as defined in Title 17 of this code, and includes a concert hall at which live symphonic music is regularly performed.

4. A performing arts facility meeting the definition in subsections 2. and .3 above may enter into a management agreement with a concessionaire for the provision

of food or beverage service (including beer) on its premises, provided that the concessionaire obtains a beer permit pursuant to this chapter. Such concessionaire shall also be considered a performing arts facility under this subsection. The premises of a performing arts facility meeting the definition in subsections 2. and 3. above shall include all enclosed and outdoor areas of the property.

"Permit" means any permit issued pursuant to this chapter.

"Permittee" means any person to whom any permit has been issued pursuant to this chapter.

"Place of worship" means a building or property where a congregation regularly meets at least one day per week for religious worship.

"Premises" means a building, portion of a building, or property that is utilized for a particular business enterprise.

"Resident" means any person who at present is living within Davidson County within the intent that his permanent home shall be within such county.

"Responsible vendor" means a person, corporation or other entity that has been issued a permit to sell beer for off-premises consumption and has received certification by the Tennessee Alcoholic Beverage Commission under the "Tennessee Responsible Vendor Act of 2006," Tennessee Code Annotated § 57-5-601, et seq.

"Responsible vendor program" means the program under which vendors and clerks can be certified.

"Retailer" means any person licensed by the metropolitan beer permit board who sells beer for consumption and not for resale.

"Retailer off-sale permit" means a permit issued by the metropolitan beer permit board to a retailer engaged in the sale of beer which is not to be consumed by the purchaser upon the premises of such permittee.

"Retailer on-sale permit" means a permit issued by the metropolitan beer permit board to a retailer engaged in the sale of beer which is to be consumed by the purchaser only upon the premises of such permittee.

"Retailer special events permit" means an on-sale beer permit issued by the metropolitan beer permit board to a retailer engaged in the sale of beer in conjunction with activities which will last for a specified period of time, including, but not limited to, fairs, bazaars, and similar public or private social events.

"School" means a public or private daycare, preschool, kindergarten, elementary, middle or high school.

"Sell" means and includes taking or receiving an order for, keeping or exposing for sale, delivering for value, keeping for intent to sell and trafficking in beer.

"Vendor" means a person, corporation or other entity that has been issued a permit to sell beer for off-premises consumption.

"Wholesale beer permit" means a permit issued by the metropolitan beer permit board to distributors selling beer solely to retailers.

"Wholesaler" means any person who sells beer to retailers. (Ord. BL2023-119 § 1, 2024; Ord. BL2021-1011 § 1, 2021; Ord. BL2019-1732 § 1, 2019; Ord. BL2018-1405 § 1, 2018; Ord. BL2017-654 § 3, 2017; Ord. BL2017-584 § 3, 2017; Ord. BL2016-383 § 1, 2016; Ord. BL2014-822 § 1, 2014; Ord. BL2014-781 § 1, 2014; Ord. BL2009-587 § 1, 2009; Ord. BL2009-459 §§ 1—3, 2009; Ord. BL2004-498 § 1, 2005; Ord. 2002-984 § 1, 2002; Ord. 99-1794 §§ 2, 7 (part), 1999; Ord. 98-1430 § 2, 1998; Ord. 95-1492 § 1, 1995; prior code § 5-1-7)

Article I. Wholesale and Retail Permits

7.08.020 Required.

No person shall sell or manufacture beer within the territorial jurisdiction of the metropolitan government without being the holder of a valid annual permit issued by the metropolitan beer permit board. (Ord. BL2018-1405 § 2, 2018; prior code § 5-1-14)

7.08.030 Types of permits.

The following types of permits may be issued by the metropolitan beer permit board:

A. A wholesaler's permit shall be issued to each distributor, manufacturer, brewer or brewery or manufacturer's branch selling beer only directly to retailers.

B. A manufacturer's permit shall be issued to each beer manufacturer engaged in the manufacturing and storage of beer.

C. A retailer's "off-sale" permit shall be issued to any person engaged in the sale of beer for consumption and not resale where the beer sold is not to be consumed by the purchaser upon or near the premises of such seller.

D. A retailer's "on-sale" permit shall be issued to any person engaged in the sale of beer where the beer is to be consumed by the purchaser or guests upon the premises of the seller and meets the requirements of any of the following:

1. An establishment meeting the requirements for an on-premise beer permit may be issued an on-premise beer permit. An on-premise beer permit may be issued to regularly conducted hotels or motels and to regularly

incorporated clubs and lodges in which places beer may be sold and consumed by the purchaser when a retailer's on-sale permit has been issued for the premises.

2. An establishment meeting the requirements for a food truck may be issued a food truck beer permit.

3. An establishment meeting the requirements for a mobile establishment may be issued a mobile beer permit.

E. A caterer's permit shall be issued to any person who has obtained a caterer license from the state alcoholic beverage commission for sale and consumption of wine and other alcoholic beverages, pursuant to Chapter 4 of Title 57 of the Tennessee Code Annotated (T.C.A. § 57-4-101 et seq.), and who is engaged in the sale of beer where the beer is to be consumed by the purchaser or his guests upon the premises of the catered event site.

F. A retailer's special events permit shall be issued to any person engaged in the sale of beer for consumption by the purchaser upon the premises of the seller for a specified period of time, and in conjunction with certain types of activities, including, but not limited to fairs, bazaars, and similar public or private social events.

G. A retailer's curbside/delivery permit shall be issued to any person engaged in the sale of beer for consumption and not resale where the beer sold is not to be consumed by the purchaser upon or near the premises of such seller and the purchaser has the option to take possession of the beer curbside or have the beer delivered to a location other than the retailer's premises. Retailers holding curbside/delivery permits shall maintain records of all off-premise sales and deliveries. All persons authorized to sell beer at retail shall pay the taxes required by Tennessee Code Annotated § 57-6-103(a), if applicable.

H. A mobile BYO beer permit shall be issued to a mobile establishment and grants the right to allow a customer to store, open and consume BYO beer on the premises of a mobile establishment, under the supervision of the mobile establishment. A mobile establishment shall be responsible for enforcement of all applicable laws respecting beer under this Title 7.

I. The board may authorize the executive director of the metropolitan beer permit board to issue temporary permits not to exceed thirty days duration in any of the above categories under such terms and conditions as the board may establish not inconsistent with this title.

J. All permits issued hereunder shall be a mere grant or privilege to carry on the business during the term of the permit subject to all the terms and conditions imposed by the Charter and related laws, applicable provisions of the Tennessee Code Annotated, and other ordinances of the city relating to these businesses. (Ord. BL2021-1011 §§ 2, 3, 2021; Ord. BL2020-455 § 1, 2020; Ord. BL2018-1405 § 3, 2018; Ord. BL2004-498 § 2, 2005; Ord. 99-1794 § 3, 1999; Prior code § 5-1-15)

7.08.040 Application—Requirements and conditions.

A. The owner of any business desiring to sell, distribute, manufacture, or store beer within the metropolitan government area may file an application in person, or by any method deemed acceptable by the metropolitan beer permit board, under oath, for a permit. The application shall be filed at least ten days prior to the date of hearing said application. The board may waive this ten-day requirement if it deems it appropriate. No permit shall be issued until the board has approved the application, which shall contain questions necessary to the determination of whether the applicant has met all laws of this state and all provisions of this code and other ordinances of the metropolitan government then in effect. The form of such application shall be prescribed by the board and approved by the metropolitan department of law.

B. To be eligible for a permit, the applicant shall establish the following:

1. That no beer will be sold except at places where such sale will not cause congestion of traffic or interference with schools, places of worship, or other places of public gathering, or otherwise interfere with public health, safety and morals; provided however, nothing in this subsection shall apply to places of business that are located in the terminal or main building at public airports serviced by commercial airlines with regularly scheduled flights;

2. That no sale shall be made to persons under twenty-one years of age;

3. That no person, firm, corporation, joint-stock company, syndicate, or association having at least a five percent ownership interest in the establishment has been convicted of any violation of the laws against possession, sale, manufacture, or transportation of beer or other alcoholic beverages or any crime involving moral turpitude within the past ten years; and,

4. That no sale shall be made for on-premise consumption unless the permit so states.

5. That no person having at least a five percent ownership interest in the establishment has been released from incarceration within the past ten years for conviction of any crime involving moral turpitude. Proof of the date of release from incarceration of any applicant convicted of any crime involving moral turpitude shall be furnished by the applicant to the beer board prior to

the consideration of such application. For purposes of this subsection, "moral turpitude" means premeditated murder, all sex related crimes, the illegal sale of Schedule I and II controlled substances, and crimes of fraud or embezzlement.

C. An applicant shall disclose the following information in the application:

1. Name of the applicant;

2. Name of the applicant's business;

3. Location of business by street address or other geographical description to permit an accurate determination of conformity with the requirements of this chapter;

4. If beer will be sold at two or more restaurants or other businesses within the same building pursuant to the same permit as provided in Section 7.08.230D, and a description of all such businesses;

5. All persons, firms, corporations, joint-stock companies, syndicates, or associations having at least a five percent ownership interest in the applicant;

6. Identity and address of a representative to receive annual tax notices and any other communication from the board;

7. Whether any person, firm, corporation, joint-stock company, syndicate, or association having at least a five percent ownership interest in the applicant or any person employed in the distribution or sale of beer has been convicted of any violation of the laws against possession, sale, manufacture, or transportation of beer or other alcoholic beverages or any crime involving moral turpitude within the past ten years;

8. Whether or not the applicant is seeking a permit which would allow the sale of beer either for on-premises consumption or for off-premises consumption, or both of the foregoing; and,

9. Such other information, relevant and material to the protection of the health, safety and morals of the inhabitants of the metropolitan government area as may be required by the board, in its discretion.

10. Whether any person having at least a five percent ownership interest in the establishment has been released from incarceration within the past ten years for conviction of any crime involving moral turpitude. For purposes of this subsection, "moral turpitude" means premeditated murder, all sex related crimes, the illegal sale of Schedule I and II controlled substances, and crimes of fraud or embezzlement.

D. No permittee shall open his premises to the public for the sale of beer until the permittee shall have first filed with the board floor plans and diagrams completely disclosing and designating a physical arrangement of the premises, should the board so require of any applicant.

E. The board shall have the right to issue a beer permit to any person, firm, corporation, syndicate, joint-stock company, or association carrying on any other regular business to store and sell, in connection therewith, such beer.

F. If the holder of a beer permit for either off-premises or on-premises consumption desires to change the permit holder's method of sale, the permit holder shall apply to the board for a new permit.

G. An applicant or permit holder shall amend or supplement the information provided in its application promptly if a change in circumstances affects the responses in its application.

H. Any applicant making any false statement in an application shall forfeit his permit, and shall not be eligible to receive any permit for a period of ten years.

I. Permits shall be issued to the owner of the business, whether a person, firm, corporation, joint-stock company, syndicate, or association. (Ord. BL2017-1032 § 1, 2018; Ord. BL2017-654 § 4, 2017; Amdt. 1 to Ord. BL2008-349 § 1, 2008; Ord. BL2008-349 § 1, 2008; Ord. BL2003-1497 § 1, 2003; Ord. 99-1794 § 4, 1999)

7.08.050 Application—Submittal to police department before approval.

A. The metropolitan beer permit board shall submit the necessary information of each applicant for a permit to the police department for the purpose of ascertaining if the applicant has ever been arrested or convicted of any offense which would prohibit the issuance of a permit.

B. Alternatively, the police department may provide the board with computer access to their records revealing the required information and provide assistance so that the board may conduct its own checks. (Ord. 99-1794 § 5, 1999)

7.08.060 Fees—Application, renewal and change in management.

A. All applications for the issuance of permits by the metropolitan beer permit board shall be accompanied by an application fee of two hundred fifty dollars. Said fee shall be used in offsetting the expenses of investigating the applicant and processing the application. No portion of the fee shall be refunded to the applicant whether an application is approved or denied.

B. All permit holders shall pay an annual privilege tax of one hundred dollars to the metropolitan beer permit board for the privilege of selling beer within the state, pursuant to Tennessee Code Annotated Section 57-5-104(b)(1).

1. Any person, firm, corporation, joint-stock company, syndicate or association engaged in selling, distributing, storing or manufacturing beer shall remit the tax on January 1, 2000, and each successive January 1st to the metropolitan beer permit board.

2. The metropolitan beer permit board shall mail written notice to each permit holder of the payment date of the annual tax at least thirty days prior to January 1st of each year. Notice shall be mailed to the address specified by the permit holder on its permit application. If a permit holder does not pay the tax by January 31st or within thirty days after written notice of the tax was mailed, whichever is later, then the metropolitan beer permit board shall notify the permit holder by certified

mail that the tax payment is past due. If a permit holder does not pay the tax within ten days after receiving notice of its delinquency by certified mail, then the permit may be suspended, revoked or the permit holder may be given a civil penalty subject to procedures set forth at Tennessee Code Annotated Section 57-5-108 and Section 7.08.110 of this chapter.

3. The metropolitan government may use these tax funds for any public purpose.

4. At the time a new permit is issued to any business subject to this tax, the permit holder shall be required to pay the privilege tax on a prorated basis for each month or portion thereof remaining until the next tax payment date. (Ord. 99-1794 § 6, 1999)

7.08.070 Conditions of permits.

Every person to whom a beer permit is issued agrees to the following conditions:

A. The premises are declared to be a public place for the purpose of inspection by the beer inspectors, by officers of the police department or by any other duly authorized law enforcement officer.

B. The permit holder shall keep invoices and all other memoranda fully descriptive relating in any way to the storing, sale, distribution by sale or gift or manufacture of beer, and he shall permit the director of finance or his duly authorized agents, representatives or employees to inspect, at any time during the business hours of the day, all such articles, containers, packages, invoices, books, papers and memoranda as may be deemed necessary in the opinion of the director of finance or his authorized agent, representative or employee in ascertaining whether or not all state and local taxes have been paid or in determining the amount of such taxes that may be due.

C. The permit holder shall display all permits issued pursuant to this article in a conspicuous place, together with all other permits, licenses and stamps required by law.

D. The holder of a retailer's "off-sale" permit shall post, in a prominent place easily seen by customers, a sign supplied by the metropolitan beer permit board that includes the following language:

> It is unlawful to possess any alcoholic beverage in an opened glass, aluminum, or metal container on these premises or other area generally open to the public. (Ord. 2003-1476 § 1, 2003; prior code § 5-1-18.1)

7.08.080 Permit to state location where sale is authorized.

The specific address or description of the premises where beer is authorized to be sold shall be stated on the face of each permit issued by the metropolitan beer permit board, and no permit shall be valid unless such address or description of the premises is stated on the face of such permit. (Prior code § 5-1-21)

7.08.090 Location restrictions—Issuance of permit after revocation.

A. 1. No beer permit shall be issued to an applicant whose location is less than one hundred feet from a place of worship, a school or its playground, a park, a licensed day care center or nursery school or their playgrounds, or a dwelling for one or two families. One- or two-family dwellings shall not be construed to include house trailers, on wheels or otherwise.

a. Exceptions. The minimum distance requirements contained herein shall not be applicable to:

i. Any location which is in the DTC or CF zone districts;

ii. Establishments which are:

(a) located within the urban services district;

(b) selling beer for on-premises consumption only; and

(c) separated by a state or federal highway consisting of no less than four lanes of traffic excluding parking lanes, from all places of worship, schools or its playgrounds, parks, licensed day care centers or nursery schools or its playgrounds, or dwellings for one or two families that are otherwise less than one hundred feet from such establishments.

iii. Retailer on-sale beer permits for any location that is on a lot in the MUL district under the provisions of Title 17 of the Metropolitan Code of Laws so long as:

(a) a retailer on-sale beer permit is obtained prior to April 30, 2003;

(b) more than fifty percent of the gross sales of said applicant for said location is derived from food sales, excluding sales of alcoholic beverages; and

(c) thereafter said permit is held without lapse of more than three hundred sixty-five days, regardless of any change of ownership.

iv. Any retailer on-sale beer permit issued to any metropolitan arena. No retailer off-sale beer permit may be issued to any metropolitan arena which does not comply with the minimum distance requirement set forth above. Additionally, all premises which are permitted under these provisions which are arenas for entertainment and sporting events shall provide designated seating which shall be "alcohol free" in the facility for events when beer or other alcoholic beverages are sold;

v. A catered event by the holder of a valid caterer's permit issued pursuant to this chapter.

vi. Any location for which a beer permit was in effect within three hundred sixty-five days of May 26, 1992, the effective date of the ordinance codified in this

subsection A and, further, shall not affect said location thereafter so long as a beer permit is held for that location without lapse of more than three hundred sixty-five days, even if there is a change of ownership of the location or the business thereon;

vii. Any retailer special events permit wherein the footprint of the event is less than one hundred feet from a place of worship, a school or its playground, a park, a licensed day care center or nursery school or their playgrounds, or a dwelling for one or two families, and the metropolitan beer permit board grants an exemption after consideration of rules promulgated by the board.

2. Any metropolitan arena which has a retailer on-sale beer permit issued under the provisions of Section 7.08.090(A)(1) shall be subject to the following provisions and restrictions:

a. For any public event conducted in such metropolitan arena which shall have an attendance of two thousand five hundred or more persons shall file with the metropolitan beer board, prior to such event, a detailed plan which provides for the following:

i. The number of persons selling or distributing beer,

ii. Locations and numbers of security personnel used to monitor the distribution and consumption of beer,

iii. Locations and number of police officers to be present,

iv. Methods of controlling amount of alcoholic beverages to be sold to individuals,

v. Times during the event that the sale of beer and other alcoholic beverages will begin and terminate, and

vi. Indication of method under which the plan was developed (i.e., past history of similar events, research of similar events conducted at other locations, etc.);

b. For any public event conducted in such metropolitan arena which shall have an attendance of two thousand five hundred or more persons and beer and/or other alcoholic beverages are to be sold, there shall be an area provided within the premises to house individuals who are unruly. Such area shall be separated from the activities of said event and shall be so located to properly protect the safety of persons to be detained as well as the general public;

c. The sale or consumption of beer shall not be permitted at any event open to the public by ticket sales or otherwise which is primarily conducted for the attendance of minors or children;

d. The permit holder shall provide the metropolitan beer board satisfactory evidence that all persons selling or distributing beer or other alcoholic beverages under said permit shall have completed a program of effective alcohol management such as T.E.A.M. (Techniques of Effective Alcohol Management), ASK (Alcohol Servers Knowledge program), or other such program as required by the Alcoholic Beverage Commission of the State of Tennessee;

e. Provided, however, no retailer off-sale beer permit or special permit may be issued under the provisions of ordinance codified in this section which does not comply with the minimum distances and other requirements as otherwise required.

3. Distances shall be measured in a straight line from the closest point of the applicant's building to the closest point of the building of the place of worship or dwelling; from the closest point of the applicant's building to the closest boundary of a park; from the closest point of the applicant's building to the closest boundary of a public school of the board of public education of the metropolitan government; and from the closest point of the applicant's building to the closest point of the building of a school, licensed day care center or nursery school, or to the closest boundary of the playground of the school, day care center or nursery school, whichever is closest to the applicant's building.

B. No permit shall be issued to any person for a location which fails to comply with any health ordinances or any regulation of the department of health or which would violate any zoning ordinance of the metropolitan government.

C. Where a beer permit is revoked, no new permit shall be issued to permit the sale of beer on the same premises to the same business enterprise or its employees operating the premises until after the expiration of one year from the date such revocation becomes final and effective; provided, however, said premises shall be eligible for the issuance of a new beer permit to a business enterprise or its employees, an owner and/or lessee who was not subject to the revocation of a beer permit at such location provided all requirements of the code regarding the location of on-sale and/or off-sale beer permits shall be met. However, a permit shall not be issued to a partner, employee, associate or relative of the holder of a revoked permit if said relationship existed at the time of the offense.

D. No permit shall be issued where the applicant has had revoked, within ten years, either a permit issued for the sale of beer by any board duly created within the county or municipality of this state or any license for the sale of liquor in any form by the alcoholic beverage commission of this state.

E. Exemption by resolution after public hearing.

1. Notwithstanding any other provision of this section to the contrary, any restaurant or any retail food store as defined below, shall be exempt from the minimum distance requirements set forth in subsection A. of the

section upon the adoption of a resolution, after a public hearing, by the metropolitan council receiving twenty-one affirmative votes approving the exemption of the restaurant or retail food store from said minimum distance requirements. The metropolitan clerk shall notify the board in writing upon the adoption of a resolution approving an exemption from the minimum distance requirements.

2. A "retail food store" for purposes of subsection E.1. above means an establishment that is open to the public that derives at least twenty percent of its sales taxable sales from the retail sale of food and food ingredients for human consumption taxed at the rate provided in Tennessee Code Annotated Section 67-6-228(a) and has retail floor space of at least ten thousand square feet. An applicant can meet the requirements of this subsection E.2. by filing an affidavit with the metropolitan beer permit board which creates a rebuttable presumption that the applicant qualifies as a retail food store.

3. Notwithstanding any other provision of this section to the contrary, any holder of a validly issued Brewer's Notice from the United States Alcohol and Tobacco Tax and Trade Bureau shall be exempt from the minimum distance requirements set forth in subsection A. of the section upon the adoption of a resolution, after a public hearing, by the metropolitan council receiving twenty-one affirmative votes approving the exemption of the establishment from said minimum distance requirements. The metropolitan clerk shall notify the board in writing upon the adoption of a resolution approving an exemption from the minimum distance requirements.

4. The board shall notify the councilmember for the district in which the applicant establishment is located in writing within five business days from the date the application is filed requesting the waiver of distance requirements.

5. The public hearing required by this subsection shall be conducted by the council at a regular meeting of the council. Public notification of the hearing shall be conducted pursuant to the public notification requirements for amendments to the official zoning map in accordance with Article XV of Chapter 17.40 of the metropolitan code, provided that notice by mail shall be sent to all property owners within six hundred feet of the establishment seeking the exemption from the minimum distance requirements not later than fourteen days prior to the scheduled public hearing on the resolution. Further, a public notice sign meeting the general requirements of Section 17.40.730 of the metropolitan code shall be posted on the property of the applicant seeking the exemption from the minimum distance requirements at least fourteen days prior to the scheduled public hearing. The costs for the public notification requirements shall be paid by the applicant, in addition to the regular application fee pursuant to Section 7.08.060 of this chapter. The applicant shall coordinate the scheduling of the public hearing with the metropolitan clerk's office prior to the filing of the resolution for purposes of including the date and time of the public hearing in the public notice to be mailed.

6. Failure of a retail food store permit holder that is exempted from the distance requirements pursuant to this subsection to meet the applicable requirements in subsection E.2. above shall constitute grounds for revocation of a permit for the sale of beer. Upon revocation of a beer permit for failure to meet the applicable requirements in subsection E.2., the retail food store applicant shall be required to reapply for the permit without being exempted from any distance requirements.

7. Notwithstanding any other provision of this section to the contrary, any holder of a validly issued Wholesaler Basic Permit from the United States Alcohol and Tobacco Tax and Trade Bureau shall be exempt from the minimum distance requirements set forth in subsection A. of the section upon the adoption of a resolution, after a public hearing, by the metropolitan council receiving twenty-one affirmative votes approving the exemption of the establishment from said minimum distance requirements. The metropolitan clerk shall notify the board in writing upon the adoption of a resolution approving an exemption from the minimum distance requirements.

F. Notwithstanding any other provision of this section to the contrary, no on-premises beer permit shall be revoked or denied solely because the expansion of the footprint of the building causes the establishment to be located within one hundred feet of a school that received an occupancy permit from the department of codes administration after the permit holder obtained the initial beer permit. Further, if an on-premises beer permit holder sells the business establishment after a school locates within one hundred feet of the establishment, an on-premises beer permit shall not be denied for the new owner solely as a result of its proximity to said school as long as the new owner applies for the on-premises beer permit within three hundred sixty-five days after the expiration of the previous owner's beer permit.

G. Notwithstanding any other provision of this section to the contrary, the location restrictions provided in subsection A. prohibiting a beer permit from being issued to an applicant whose location is within one hundred feet of a one or two family dwelling shall not apply if the only single or two family dwelling within

one hundred feet is connected to the structure for which the permit is sought and is the primary dwelling of the permit holder.

H. No retailer off-sale permit shall be issued to an applicant whose location is within or attached to an indoor shopping mall that has a community center operated by the metropolitan department of parks and recreation and/or a public library on the premises. For purposes of this subsection, "indoor shopping mall" means a shopping center with stores and businesses facing a system of enclosed walkways for pedestrians. (Ord. BL2023-2007 § 1, 2023; Ord. BL2019-1732 § 1, 2019; Ord. BL2018-1405 §§ 4, 5, 2018; Ord. BL2017-907 §§ 1, 2, 2017; Ord. BL2017-654 § 5, 2017; Ord. BL2016-454 §§ 1, 2, 2016; Ord. BL2016-330 §§ 1, 2, 2016; Amdt. 1 to Ord. BL2016-160 § 1, 2016; Ord. BL2016-160 § 1, 2016; Ord. BL2015-1278 § 1, 2015; Amdt. 1 to Ord. BL2014-840 § 1, 2014; Ord. BL2014-840 § 1, 2014; Ord. BL2014-742 § 1, 2014; Amdt. 1 to Ord. BL2014-697 § 1, 2014; Ord. BL2014-697 § 1, 2014; Ord. BL2010-714 § 1, 2010; Ord. BL2010-710 § 1, 2010; Ord. BL2009-587 § 1, 2009; Ord. BL2004-498 § 3, 2005; Ord. BL2003-1353 § 1, 2003; Ord. BL2002-1162 § 1, 2002; Ord. BL2000-442 § 1, 2000; Ord. BL2000-405 § 1, 2000; Ord. BL99-118 § 1, 2000; Ord. 99-1794 § 7 (part), 1999; Ord. 98-1325 § 1, 1998; Ord. 97-924 § 1, 1997; Amdts. 1, 2, 3, 4 to Ord. 94-1315, 6/6/95; Ord. 95-1315 § 1, 1995; Ord. 92-448 § 1, 1992; Ord. 92-434 § 1, 1992; Ord. 92-406 § 1, 1992; Amdt. 2 to Ord. 92-246, 4/21/92; Amdt. 1 to Ord. 92-246, 4/21/92; Ord. 92-246 § 2, 1992; Amdt. 1 to Ord. 91-1552; 4/22/91; Ord. 91-1552 § 1,1991; Ord. 90-1435 § 1, 1990; Amdt. 1 to Ord. 89-1033, 12/5/89; Ord. 89-1033 §§ 1, 2, 1989; prior code § 5-1-18.2)

7.08.100 Retailer on-sale beer permit—Issuance requirements.

Establishments holding retail on-sale beer permits shall be constructed of such material that the floors, walls, ceilings, carriages and vehicles can be easily cleaned and kept clean. (Ord. BL2021-1011 § 4, 2021; Ord. BL2014-743 § 1, 2014; Ord. 2002-984 § 2, 2002; Ord. 99-1794 § 7 (part), 1999; prior code § 5-1-18.3)

7.08.105 Caterer's permit—Issuance and notice requirements—Location restrictions.

In addition to the other requirements of this chapter:

A. No caterer's permit shall be issued to a person who does not hold a valid caterer license from the state alcoholic beverage commission for sale and consumption of wine and other alcoholic beverages pursuant to Chapter 4 of Title 57 of the Tennessee Code Annotated (T.C.A. § 57-4-101 et seq.). Should the holder of a caterer's permit cease to hold a valid caterer license from the state alcoholic beverage commission, such caterer's permit shall be automatically deemed revoked by the board.

B. No caterer's permit shall be issued to a person who does not hold a valid retailer's "on-sale" permit for its permanent catering hall issued pursuant to the provisions and requirements of this chapter, including the location restrictions specified in Section 7.08.090.

C. All caterer's permit holders shall be required to give advanced written notice to the beer board office via facsimile or U.S. mail, not later than one business day prior to each event for which beer will be sold and consumed. Such notice shall include, but not be limited to, the date, time, and location of the event.

D. No caterer's permit shall be valid for the sale and consumption of beer on any premises for which a retailer's "on-sale" permit has been revoked within the past twelve-month period, nor shall a caterer's permit be used for the sale and consumption of beer on any premises owned or leased by a person, firm, corporation, joint-stock company, syndicate, or association having at least a five percent ownership interest in the establishment that has had a retailer's "on-sale" permit revoked within the past twelve-month period.

E. No caterer's permit shall be valid for the sale and consumption of beer on any premises within one hundred feet from a place of worship or a school or its playground, unless the catered event is sponsored and held by the place of worship or private school for the benefit of said place of worship or school. (Ord. BL2017-654 § 6, 2017; Ord. BL2005-866 § 1, 2005; Amdt. 1 with Ord. BL2004-498 § 4, 2005)

7.08.110 Suspension and revocation of permit—Authority.

A. The metropolitan beer permit board shall have the power to revoke or suspend, and shall be charged with the duty of revoking or suspending, any permits issued by it, upon notice to the permittee and a hearing thereon, for any violation of any provision of state law regulating the sale, storage and transportation of alcoholic beverages or for any violation of any provision of this code or any other ordinance of the metropolitan government or of any private act, county court resolution or City of Nashville ordinance which has the effect of an ordinance of the metropolitan government regulating beer or other intoxicating beverage, or when the permittee:

1. Operates a disorderly place;

2. Permits boisterous or disorderly conduct on the premises;

3. Has been convicted by final judgment of a court of competent jurisdiction of a crime involving moral turpitude;

4. Permits minors to congregate about the premises;

5. Sells or transfers the equipment or assets of the business authorized by his permit to another for the purpose of conducting the business on the same premises, unless he shall notify the board in writing immediately upon such sale or transfer, and shall surrender his license within thirty days after said sale or transfer;

6. Has made a false statement of a material fact in any application or notice to the board;

7. Sells or allows to be sold on the premises of the permittee any beer to any person under the age of twenty-one years; or

8. Sells or allows to be sold on the premises of the permittee beer to any person using food stamps issued pursuant to state or federal law for the purchase of such beer.

B. Pursuant to Tennessee Code Annotated § 57-5-608, the beer board shall not revoke or suspend a permit because of the sale of beer to a minor if, at the time of the sale: (1) the permit holder was a responsible vendor, and (2) the clerk who made the sale was certified under the Responsible Vendor Program, or had been employed for sixty-one days or less. If the permit holder's certification has been revoked, the permit holder shall be punished by the beer board as if the vendor were not certified as a responsible vendor.

C. In lieu of any suspensions that might have been imposed but for the restrictions set forth in subsection B; the beer permit board may impose a civil penalty not to exceed one thousand dollars. If the beer board determines that a clerk of an off-premises beer permit holder certified under the Responsible Vendor Program sold beer to a minor, the beer board shall report the name of the clerk to the alcoholic beverage commission within fifteen days after such determination by the board. (Ord. BL2009-459 §§ 4, 5, 2009; Ord. 99-1794 §§ 8 (part), 9, 1999; prior code § 5-1-23)

7.08.120 Draft beer defined—Off-premises consumption sales.

A. Draft beer may be sold for off-premises consumption only by the holder of an off-sale beer permit.

B. "Draft beer," as defined in this section, means beer which is poured from a pressurized container or keg into a container approved by the State of Tennessee, which is then commercially sealed. The process of pouring the beer into the container and commercially sealing same shall take place on the premises of the retailer in an area separate from the area which the public may use. (Ord. 99-1794 §§ 7 (part), 8 (part), 1999; prior code § 5-1-15.1)

7.08.130 Prohibited acts—Generally.

It is unlawful for any person:

A. To bring, to cause, or allow to be brought onto the premises of any permittee under the provisions of this chapter any prohibited drugs within the meaning of Tennessee Code Annotated, Sections 53-10-101, et seq., and 39-17-401, et seq.,

B. To bring, to cause, or allow to be brought onto the premises of any permittee under the provisions of this chapter any intoxicating beverage, the alcoholic content of which is in excess of eight percent by weight, unless such permittee is the holder of a valid license issued under the authority of Tennessee Code Annotated, Title 57, Chapter 4 (T.C.A. § 57-4-101 et seq.); provided, however, that any permittee that is the holder of a Brewer's Notice from the United States Alcohol and Tobacco Tax and Trade Bureau, and such permittee is adjacent to and shares common interior and/or enclosed exterior areas with a distillery that holds a valid license issued under the authority of T.C.A. § 57-3-202, shall be allowed to permit alcoholic beverages, whether open or sealed, from such distillery to be brought onto the premises of the permittee as long as any sealed containers remain sealed while on the premises of the permittee;

C. Being under the age of twenty-one years, to have in his or her possession beer for any purpose, except that any person eighteen years of age or older may transport, possess, sell or dispense alcoholic beverages, wine or beer in the course of his or her employment. (Ord. BL2017-866 § 1, 2017; Ord. BL2017-584 § 4, 2017; Ord. 99-1794 §§ 8 (part), 10, 1999)

7.08.140 Prohibited acts—By permit holders, agents or employees.

It is unlawful for any beer permit holder or his agent or employee:

A. To employ any person convicted for the possession, sale, manufacturing or transportation of intoxicating liquor or any crime involving moral turpitude within the past ten years;

B. To employ any person that has been released from incarceration within the past ten years for conviction of any crime involving moral turpitude. For purposes of this subsection, "moral turpitude" means premeditated murder, all sex related crimes, the illegal sale of Schedule I and II controlled substances, and crimes of fraud or embezzlement.

C. To make or permit to be made any sale of beer to a person under twenty-one years of age;

D. To sell, give away, or allow beer to be consumed on any premises granted a permit under this chapter from three o'clock (3:00) a.m. to six o'clock (6:00) a.m. on weekdays and from three o'clock (3:00) a.m. to ten o'clock (10:00) a.m. on Sundays. This provision shall not apply to any beer permit holder that is permitted by Section 57-4-203(d)(6) of the Tennessee Code Annotated, as enacted by House Bill 1289 (2017 Tenn. Pub. Ch. 371), to sell or give away alcoholic beverages at any time of day except for the hour between three o'clock (3:00) a.m. and four o'clock (4:00) a.m. Such permit holders may sell, give away, or allow the consumption of beer on their premises during any hours they are permitted by state law to sell or give away alcoholic beverages;

E. To allow any person under eighteen years of age to loiter or congregate about the premises. The burden of ascertaining the age of minor persons shall be on the permit holder and his agent or employee. When a minor is seated at a table, there shall be no beer served at the table unless such minor is accompanied by a parent or guardian. When a minor is seated at a mobile establishment that holds a mobile beer permit or mobile BYO beer permit, there shall be no beer served unless such minor is accompanied by a parent or guardian;

F. To make false statement of a material fact in his application for any beer permit;

G. To operate a disorderly place;

H. To knowingly allow beer to be passed from a lawful purchaser or possessor to a minor for consumption on the premises of the permit holder. The burden of ascertaining the age of persons who may not lawfully possess beer shall be on the permit holder and his agent or employee;

I. For a retailer to knowingly sell to a lawful purchaser who purchases beer for consumption by a minor. The burden of ascertaining the age of persons who may lawfully possess beer shall be on the permit holder and his agent or employee;

J. To permit rowdy or disorderly conduct on the premises;

K. To sell or transfer the equipment or assets of the business authorized by his permit to another for the purpose of continuing the business on the same premises, unless he shall notify the board in writing immediately upon such sale or transfer, and unless he shall give the name and address of the purchaser within said notice. A beer permit holder shall surrender his license to the board within thirty days after the sale or transfer is consummated;

L. Make or allow any sale to any intoxicated person or to any feebleminded, insane or otherwise mentally incapacitated person;

M. Allow any intoxicated person to loiter on or about his premises;

N. For a retailer or wholesaler, to store beer in any place other than the address listed on the permit;

O. To sell or allow to be sold on the premises of the permittee beer to any person using food stamps issued pursuant to state or federal law for the purchase of such beer;

P. To allow gambling or gambling devices of any kind or description contrary to state law on the premises;

Q. To allow solicitation for purposes of prostitution on the premises;

R. To allow or engage in any criminal activity on the premises. (Ord. BL2021-1011 §§ 5, 6, 2021; Ord. BL2018-1440 § 1, 2019; Ord. BL2017-834 § 1, 2017; Ord. BL2014-654 § 1, 2014; Ord. BL2013-633 § 1, 2014; Ord. BL2013-592 § 1, 2013; Ord. BL2008-349 § 2, 2008; Amdt. 1 with Ord. 2003-1363 § 1, 2003; Ord. 99-1794 §§ 8 (part), 11, 1999; Ord. 93-669 §§ 1, 2, 1993; Amdt. 1 to Ord. 91-2, 10/15/91; Ord. 91-2 § 1, 1991; prior code § 5-1-23.3)

7.08.150 Suspension and revocation of permit—Civil penalty options.

A. In addition to its authority in Section 7.08.110, the beer permit board may, at the time it imposes a suspension, offer a permit holder the alternative of paying a civil penalty not to exceed one thousand dollars provided however that the amount of the civil penalty may be increased to an amount not to exceed two-thousand five hundred dollars in the case of a sale to a minor by a permit holder that is not a responsible vendor. If a civil penalty is offered as an alternative to revocation or suspension, the holder shall have seven days within which to pay the civil penalty before the revocation or suspension shall be imposed. If the civil penalty is paid within that time, the revocation or suspension shall be deemed withdrawn. Payment of the civil penalty in lieu of revocation or suspension by a permit holder shall be an admission by the holder of the violation so charged and shall be paid to the exclusion of any other penalty that may be imposed.

B. Revocation, suspension or imposition of a civil penalty may be made where it appears satisfactorily that the premises of any person, firm or corporation holding a beer permit under this chapter are being operated in such manner as to be detrimental to public health, safety and morals.

C. The action of the board in connection with the issuance of any order revoking or suspending a beer permit or imposition of a civil penalty may be reviewed by statutory writ of certiorari, with a trial de novo as a substitute for an appeal, the petition of certiorari to be addressed to the circuit or chancery court of Davidson County. The procedures in Tennessee Code Annotated Section 57-5-108 are the sole method for review of decisions under this section, as they may be amended.

D. Where a permit is revoked, no new license shall be issued to permit sale of beer on the same premises until the expiration of one year from the date the revocation becomes final and effective. The board may, in its discretion, determine that issuance of a license or permit before the expiration of one year from the date of revocation becomes final is appropriate, if the individual applying for such issuance is not the original holder of the license or any family member who could inherit from such individual under the statute of intestate succession, or, if any new owner is not in any way associated with the owner whose permit was revoked.

E. The board may revoke or suspend a permit or impose a civil penalty on any beer retailer who is found to possess beer on which the state beer barrelage tax and the county wholesale beer tax has not been paid. The burden of proof shall be on the permit holder to show the taxes on the beer have been paid by showing that the beer was purchased from a Tennessee beer wholesaler by providing a bill of sale or invoice showing name and address of the retailer and wholesaler and the number of containers of each brand purchased, and which shall be signed by the retailer.

F. A beer permit of a responsible vendor may be permanently revoked only if the permit holder has had two or more violations of selling beer to a minor within a twelve month time period. (Amdt. 1 to Ord. BL2009-459 § 6, 2009; Ord. BL2009-459 §§ 6, 7, 2009; Ord. 99-1794 § 12, 1999)

Article II. General Regulations

7.08.160 Permitted activities.

It is lawful to transport, store, sell, distribute, possess, receive and manufacture beer, as defined in Section 7.08.010, within the geographical area of the metropolitan government, subject to all regulations, limitations and restrictions provided in this title. (Ord. 99-1794 § 8 (part), 1999; prior code § 5-1-8)

7.08.170 Restrictions on sales by wholesalers.

It is unlawful for any authorized wholesaler to sell beer to anyone other than a person, firm, corporation, syndicate or association having been authorized and licensed by any city or county as a retailer by a board duly created for the purpose of licensing retail establishments. Provided, however, if a retail business has posted a beer permit, which on its face appears to be valid, a wholesaler who sells beer to the retail business will not be deemed to have violated the provisions of this section. (Amdt. 1 with Ord. 99-1794 §§ 8 (part), 17, 1999; prior code § 5-1-9)

7.08.180 Limitations on purchases.

No permit holder, except an authorized wholesaler or an authorized manufacturer, may sell or store beer within the metropolitan government area unless such beer has been purchased directly from an authorized wholesaler. (Ord. BL2018-1405 § 6, 2018; Ord. BL2008-349 § 3, 2008; Ord. 99-1794 § 8 (part), 1999; prior code § 5-1-10)

7.08.190 Retail sales and storage—Permit location only.

Retailers holding permits to sell beer are authorized to sell and store beer at only the location authorized by the metropolitan beer permit board and specifically designated on their respective permits as the place for which the permit is issued. The sale or storage of beer by a retailer at any place other than the location authorized by the board and specifically named on the face of his permit is prohibited. (Ord. 99-1794 § 8 (part), 1999; prior code § 5-1-12)

7.08.200 Retail purchases and deliveries—Permit location only.

A. Retailers holding permits from the metropolitan beer permit board are only authorized to deliver beer on the premises for which the permit is issued. The delivery of beer by a retail permit holder at any place other than the premises for which his permit is issued is prohibited. No retail permit holder shall enter into any agreement with any person or conspire with any person to cause beer to be delivered off of the premises for which his permit is issued or at any location other than the one authorized by his permit for the sale of beer.

B. It shall be unlawful for any holder of a retail beer permit to knowingly permit the purchase of beer at his place of business by anyone for resale and delivery to another. Holders of retail beer permits issued by the board are prohibited from selling beer to any person when the retail permit holder knows or should have reason to know that such beer is purchased for resale and delivery off of the premises for which his permit is issued. (Ord. 99-1794 § 8 (part), 1999; prior code § 5-1-13)

7.08.210 Resale prohibited when.

It is unlawful for any retailer holding a permit issued by the metropolitan beer permit board to purchase, accept as a gift or loan, or to receive, swap or exchange, beer, for the purpose of resale, from any person who is not the holder of a valid wholesale permit issued by the board. (Ord. 99-1794 § 8 (part), 1999; prior code § 5-1-11)

7.08.220 Return of beer permit upon termination of business.

A permit holder must return his permit to the board within fifteen days of termination of the business, change in ownership, relocation of the business or change of the businesses name; provided that, regardless of the failure to return a beer permit, a permit shall expire upon termination of the business, change in ownership, relocation of the business or change of the business's name. (Ord. 99-1794 §§ 8 (part), 13, 1999)

7.08.230 Valid permit—Limitations.

A permit shall be valid:

A. Only for a single location, except as provided in subsections D and F of this section, and cannot be transferred to another location. A permit shall be valid for all decks, patios and other outdoor serving areas that are contiguous to the exterior of the building in which the business is located and that are operated by the business. However, a permit holder for a business that is subject to the distance requirements set forth in this chapter, at Section 7.08.090, may not sell beer at a deck, patio and/or other outdoor serving area that is built after the date of the issuance of the permit.

B. Only for a business operating under the name identified in the application.

C. Only for the owner to whom the permit is issued and cannot be transferred to another owner. Should the ownership of a location change, the new owner shall apply for a new permit in accordance with Article I of Chapter 7.08. If the owner is a corporation, a change in ownership shall occur when control of at least fifty percent of the stock of the corporation is transferred to a new owner.

D. Where an owner operates two or more restaurants or other businesses within the same building, the owner may at the owner's discretion operate some or all such businesses pursuant to the same permit.

E. A business can sell beer for both on-premises and off-premises consumption at the same location pursuant to one permit.

F. A caterer's permit is valid for each catering site, provided that the notice requirements of Section 7.08.105 are met. (Ord. BL2004-498 § 5, 2005; Ord. 99-1794 § 14, 1999)

7.08.240 Hotels and motels.

A. Any hotel or motel licensed under this chapter may dispense beer to adult guests through locked, in-room units.

B. No minor shall be issued or supplied with a key by any hotel or motel for these units. (Ord. 99-1794 § 15, 1999)

Division II. Urban Services District

Chapter 7.12

ALCOHOLIC BEVERAGE WHOLESALERS

Sections:

7.12.010	**Definitions.**
7.12.020	**Fee imposed—Rate—How measured.**
7.12.030	**Collection of fees.**
7.12.040	**Remittance of fees—Reports required—Penalty—Reimbursement.**
7.12.050	**Disposition of fees—Purpose—Fund credited.**
7.12.060	**Disposition of fees—Payment agreements—Authorization.**
7.12.070	**Applicability of chapter.**

7.12.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Alcoholic beverage" or "alcoholic beverages" shall be as defined in Section 57-3-501, et seq. of Tennessee Code Annotated, but such term shall not be construed to include beer or other beverages of alcoholic content of less than eight percent by weight, as defined by Title 57, Chapter 3, Part 5 of Tennessee Code Annotated.

"Retailer" means a person who sells alcoholic beverages or wine for consumption and not for resale.

"Wholesaler" means a person who sells alcoholic beverages or wine to retailers. Such term shall include distributors, distillers or any person making sales to retailers.

"Wholesale sale" or "sale at wholesale" means a sale to any person for the purposes of resale.

"Wine" shall be as defined by Section 57-3-501, et seq. of Tennessee Code Annotated. (Ord. BL2017-584 § 5, 2017; Ord. 90-1339 § 1 (5-4), 1990; prior code § 5-1-24)

7.12.020 Fee imposed—Rate—How measured.

For the purpose of providing a means of regulating the liquor business in the metropolitan government area, there is levied and imposed upon licensed retailers of alcoholic beverages a regulatory, supervisory and inspection fee at the rate of five percent upon all sales of alcoholic beverages or wine made by a wholesaler to a licensed retailer. The fee shall be measured by the wholesale price of the alcoholic beverage or wine sold by the wholesaler and paid by the retailer to the wholesaler and shall be five percent of such wholesale price. (Prior code § 5-1-25)

7.12.030 Collection of fees.

The inspection fee imposed by this chapter shall be collected by the wholesaler from the retailer at the time of the sale or at the time the retailer makes payment for the delivery of the alcoholic beverages. (Prior code § 5-1-26)

7.12.040 Remittance of fees—Reports required—Penalty—Reimbursement.

A. The supervisory, regulatory and inspection fees imposed by this chapter shall be remitted each month by all wholesalers to the director of finance, payable to the metropolitan government, not later than the twentieth day of the month following which the sales were made.

B. Every wholesaler shall file with the director of finance each month, at the time of making such remittance, a monthly report, in duplicate, containing a list of the alcoholic beverages sold to each retailer located within the metropolitan government area, the wholesale price of the alcoholic beverage sold to each retailer, the amount of tax due, and such other information as may be required by the director of finance.

C. The failure to collect or timely report or pay the inspection fee collected shall result in a penalty of ten percent of the fee due the metropolitan government. Such penalty is in addition to the other penalties prescribed in this code.

D. Wholesalers collecting and remitting the above inspection fee to the metropolitan government shall retain, in each remittance made to the metropolitan government as provided herein, an amount equal to five percent of the total amount of inspection fees collected and remitted as compensation for collecting and reporting the fees imposed herein. Such reimbursement shall be deducted and shown on the monthly report to the director of finance. (Ord. BL2012-156 § 7, 2012; Ord. 96-166 § 3, 1996; prior code § 5-1-27)

7.12.050 Disposition of fees—Purpose—Fund credited.

In order to promote the regulation, enforcement and supervision of the alcoholic beverage industry, and tend to prevent the violation of the liquor laws of the metropolitan government, the director of finance shall deposit all money collected pursuant to this chapter for credit to the general services district general fund, to be used for law enforcement purposes. (Prior code § 5-1-30)

7.12.060 Disposition of fees—Payment agreements—Authorization.

The mayor is authorized to enter into and execute agreements by and between the metropolitan government and other municipalities within Davidson County as regards the collections made by the metropolitan government of the five percent inspection fee imposed by Section 7.12.020, whereby the fee collected by the metropolitan government on sales made to retailers in said municipalities shall be disbursed to them by the metropolitan government. (Prior code § 5-1-30.1)

7.12.070 Applicability of chapter.

This chapter shall be effective in the general services district. (Prior code § 5-1-31)

Chapter 7.16

ALCOHOLIC BEVERAGE REGULATIONS

Sections:

Article I. General Regulations

7.16.010 Definitions.
7.16.020 Interpretation and application of chapter provisions.
7.16.030 Locations where sales permitted.
7.16.040 Sales beyond permitted limits prohibited when.
7.16.050 Premises—Ground floor, entrances and exits.
7.16.060 Premises—Visibility of interior.
7.16.070 Mayor—Powers and duties.
7.16.080 Enforcement of chapter provisions—Authority.

Article II. Certificate of Compliance

7.16.090 Application—Publication of notice.
7.16.100 Prohibited for premises outside lawful area.
7.16.110 Location restrictions.
7.16.120 Reserved.
7.16.130 Fee payment restrictions.
7.16.140 Issuance authority.
7.16.150 Effect of conviction of violating alcoholic beverage laws.
7.16.160 Expiration of permit.
7.16.170 Nontransferable—Temporary agents authorized when.
7.16.180 Premises removal, relocation, transfer conditions.
7.16.190 Effect of felony conviction involving moral turpitude.

Article I. General Regulations

7.16.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Alcoholic beverage" or "beverage" means alcohol, spirits, liquor, wine and every liquid containing alcohol, spirits, wine and capable of being consumed by a human being, other than patented medicine, beer or wine, where the latter two contain an alcoholic content of eight percent by weight, or less.

"Applicant" means a person, partnership or corporation applying for a certificate of compliance for a proposed retail liquor license.

"Certificate of compliance" means a certificate signed by the mayor certifying:

1. That the applicant(s) for a retail liquor license before the alcoholic beverage commission who are to be in actual charge of the business have not been convicted of a felony within a ten-year period immediately preceding the date of application and, if a corporation, that the executive officers or those in control have not been convicted of a felony within a ten-year period immediately preceding the date of application; and further, that in the official's opinion, the applicant will not violate any of the provisions of this title;

2. That the applicant or applicants have secured a location for the business which complies with all restrictions of any local law, ordinance or resolution, duly adopted by the local authorities as to location within the city or county, and that the applicant or applicants meet all residency requirements, if any, established by such local authority; and

3. That the applicant or applicants have complied with any local law, ordinance or resolution duly adopted by the local authorities regulating the number of retail licenses to be issued within the jurisdiction.

"License" means a license issued by the alcoholic beverage commission for the retail sale of alcoholic spirituous beverages to patrons or customers in sealed packages only, not for consumption on the premises.

"Licensee" means any person to whom a license has been issued by the alcoholic beverage commission.

"Retailer" means any person who sells at retail any beverage for the sale of which a license is required under the provisions of this chapter.

"Retail sale" or "sale at retail" means a sale to any person for any purpose other than for resale or for consumption on the premises of the retailer.

"Wholesaler" means any person who sells at wholesale any beverage for the sale of which a license is required by the alcoholic beverage commission.

"Wholesale sale" or "sale at wholesale" means a sale to any person for purposes of resale.

"Wine" means the product of the normal alcoholic fermentation of the juice of fresh, sound, ripe grapes, with the usual cellar treatment and necessary additions to correct defects due to climatic, saccharine and seasonal conditions, including champagne, sparkling and fortified wine of an alcoholic content not to exceed twenty-one percent by volume. No other product shall be called "wine" unless designated by appropriate prefixes descriptive of the fruit or other product from which the same was predominantly produced, or an artificial or imita-

tion wine. (Ord. BL2017-584 § 6, 2017; Ord. 90-1339 § 1 (5-8), 1990; prior code § 5-2-1)

7.16.020 Interpretation and application of chapter provisions.

A. It is unlawful to store, transport, sell, distribute, possess and receive alcoholic beverages in the city within the area set out and defined in Sections 7.16.030 and 7.16.110, subject to the payment of taxes, limitations, regulations and conditions herein provided for.

B. Nothing in this chapter is intended to relate to the transportation, storage, sale, distribution, possession, receipt of, or tax upon any beverage of alcoholic content of eight percent by weight or less, and no ordinance relating thereto shall be considered or construed as modified by this chapter. (Ord. BL2017-584 § 7, 2017; Ord. 90-1339 § 1 (5-9), 1990; prior code § 5-2-2)

7.16.030 Locations where sales permitted.

A. Liquor may be sold at retail locations, provided they meet the following criteria:

1. The proposed location is within the urban services district;

2. The proposed location is on, or has its principal access to, an existing arterial-boulevard as shown on the major street plan as adopted by the metropolitan planning commission; provided this arterial-boulevard street access requirement shall not be applicable for the following:

(a) a retail location with an entertainment event center adjoining as a separate business to said retail location, on a commercial property that consists of 2.24 acres within a strip shopping center as of 2018, located seven hundred fifty feet from the nearest existing arterial boulevard and located on a collector-avenue or local street no more than three thousand nine hundred sixty feet in length that intersects, at two or more locations, the same existing arterial boulevard as depicted on the major street plan as adopted by the metropolitan planning commission.

(b) an artisan distillery as defined in Section 17.04.060 of the Metropolitan Code.

(c) a retail location on a commercial property that consists of approximately four acres within a master condominium property established by declaration recorded in 2021, located on a collector-avenue or local street no more than three thousand nine hundred sixty feet from the nearest existing arterial boulevard and located within 200 yards of Charlotte Park.

(d) a retail location with a gas station and convenience store co-located on the same parcel as a separate business, on a commercial property that consists of approximately 1.66 acres located on a collector-avenue no more than six hundred forty feet from the nearest arterial boulevard and secondary tourist development zone boundary and located adjacent to right-of-way for Briley Parkway.

3. The proposed location is within major commercial concentrations having a land area of ten or more contiguous commercially developed acres. Commercial development separated by a public street or alley shall be considered contiguous.

B. The mayor may submit such proposed locations to the metropolitan department of planning for an opinion as to whether the three criteria set out in subsection A have been met.

C. Notwithstanding any provision of subsection A or B to the contrary, those premises which held a valid certificate of compliance and license to sell liquor at retail on October 5, 1990, when Metropolitan Ordinance 90-1339 became effective, and which front and abut upon either side of the following streets, roads or avenues, shall continue to be locations where the retail sale of liquor is permitted:

1. Jo Johnston Avenue beginning at the westerly-most intersection of Jo Johnston Avenue and Tenth Circle, North; thence westerly along Jo Johnston Avenue to the easterly-most intersection of Jo Johnston Avenue and Fourteenth Avenue North, including both sides of the street;

2. Buchanan Street beginning at the westerly-most intersection of Buchanan Street and Third Avenue, North; thence westerly along Buchanan Street to the easterly-most intersection of Buchanan Street and Eighteenth Avenue, North including both sides of the street.

3. Stewart's Ferry Pike between Lauer Drive and Hickory Bend Drive.

4. McGavock Pike between Briley Parkway and Riverview Drive.

D. Provided, if a certificate of compliance or license to sell liquor at retail for the location described in subsection C shall lapse for a period of one year, the retail sale of liquor shall no longer be permitted at such location. (Ord. BL2023-2008 § 1, 2023; Ord. BL2023-1870 § 1, 2023; Amdt. 1 to Ord. BL2018-1376 § 1, 2018; Ord. BL2018-1376 § 1, 2018; Ord. BL2011-863 § 1, 2011; Ord. BL2010-747 § 1, 2010; Ord. BL2001-687 § 1, 2001; Ord. BL2000-320 § 1, 2000; Ord. 92-338 § 1, 1992; Ord. 90-1339 § 1 (5-10), 1990; prior code 5-2-3)

7.16.040 Sales beyond permitted limits prohibited when.

It shall be unlawful for any person to sell at retail any alcoholic beverages beyond the limits of the area defined

in Section 7.16.030, at any location or place therein where a retail liquor license, as presently issued, has been revoked, abandoned, surrendered or transferred by lease, or where the owner thereof has prior to the expiration of such license failed to apply for a renewal of the same. (Prior code § 5-2-4)

7.16.050 Premises—Ground floor, entrances and exits.

No wholesaler or retailer shall be located except on the ground floor and shall have one main entrance opening on a public street. Such place of business shall have no other entrance for use by the public, except as hereafter provided. When a wholesale or retail store is located on the corner of two public streets, such wholesale or retail store may maintain a door opening on each of the public streets; provided, that any salesroom adjoining the lobby of a hotel or other public building may maintain an additional door into such lobby, so long as same shall be open to the public. Every wholesale and retail store shall be provided with whatever entrances and exits may be required by existing or future provisions of this code or other ordinances. The provisions of this section shall not be applicable to an artisan distillery as defined in Section 17.04.060 of the metropolitan code. (Ord. BL2011-863 § 2, 2011; prior code § 5-2-17)

7.16.060 Premises—Visibility of interior.

It is the policy of this chapter that to the fullest extent, consistent with the nature of the establishment, full, free and unobstructed vision shall be afforded from the street and public highway of the interior of the place of sale or dispensing of alcoholic beverages sold or dispensed therein. The provisions of this section shall not be applicable to an artisan distillery as defined in Section 17.04.060 of the metropolitan code. (Ord. BL2011-863 § 3, 2011; prior code § 5-2-7)

7.16.070 Mayor—Powers and duties.

The mayor shall have authority, by and with the consent of the metropolitan council, to employ additional necessary clerical help, whose compensation shall be paid out of the funds or receipts collected under the municipal inspection fee under Metropolitan Code Section 7.12.020. The mayor shall enforce and administer the provisions of this chapter. He shall have and exercise the following functions, duties and powers:

A. If, upon investigation, the mayor finds that the applicant for a certificate of compliance has concealed or misrepresented in writing, or otherwise, any material fact or circumstance concerning the operation of the business or employment, or if the interest of the applicant in the operation of the business or employment is not truly stated in the application or in case of any fraud or false swearing by the applicant touching any matter relating to the operation of the business or employment, the mayor shall refuse to cause the certificate of compliance to be issued. If such certificate of compliance has been issued, the mayor shall request the alcoholic beverage commission to hold a hearing to determine whether such license should be revoked. All data, written statement, affidavit, evidence or other documents submitted in support of an application shall be deemed to be a part of the application.

B. The mayor shall have the right:

1. To summon any applicant for a license or permit and also to summon and examine witnesses and to administer oaths to such applicants and witnesses in making any investigation in regard thereto;

2. To prescribe all forms of applications, and of all reports and all other papers and documents required to be used under or in the enforcement of this chapter;

3. To prevent parts of the premises connected with or in any sense used in connection with the premises whereon the possession, transportation, delivery, receipt, sale or purchase of alcoholic beverages, may be lawful, from being used as a subterfuge or means of evading the provisions of this chapter or the rules and regulations of the alcoholic beverage commission;

4. To require, on licensed premises, the destruction or removal of all bottles, whether empty or otherwise, cases, containers, apparatus or devices, used or likely to be used, or designed or intended or employed in evading, violating or preventing the enforcement of this chapter or the rules or regulations of the alcoholic beverage commission. (Ord. 90-1339 § 1 (5-11), 1990; prior code § 5-2-5)

7.16.080 Enforcement of chapter provisions—Authority.

In order to carry out the provisions of this chapter, the mayor is authorized to call upon any employee in the department of finance, as well as upon any member of the police department, to assist in the enforcement of the provisions of this chapter. (Prior code § 5-2-6)

Article II. Certificates of Compliance

7.16.090 Application—Publication of notice.

All persons desiring to engage in the sale of spiritous liquors or vinous liquors at retail in sealed packages only and not for the consumption on the premises shall make written application to the mayor for such privilege upon forms to be prepared and approved by the mayor, which application shall give the name and address of all

individuals with an ownership interest in the applicant entity, place where the proposed business is located, nature and character of the business to be carried on, and, if a partnership, the names of the partners and such information as may be required by the mayor. (Ord. BL2024-583 §§ 1, 2, 2024; prior code § 5-2-46)

7.16.100 Prohibited for premises outside lawful area.

No certificate of compliance shall be granted entitling the applicant to apply for a license from the alcoholic beverage commission to sell an alcoholic spirituous beverage at retail in respect to premises situated outside of the area defined in Section 7.16.030. (Ord. 90-1339 § 1 (5-14), 1990; prior code § 5-2-38)

7.16.110 Location restrictions.

A. Except as provided in subsection G. of this section, no certificate of compliance shall be issued under this chapter to any retailer where the place of business of the applicant is located within fifty yards of a private residence or a branch of the Nashville Public Library, which is on the same side of the street of the proposed retail store, or is within one hundred yards of any place of worship or two hundred yards of a schoolground or college campus. These restrictions as to locations apply to conditions existing at the present. Changes in such conditions shall not entitle or forbid the location of liquor stores by reason of such unless otherwise provided by ordinance.

B. 1. A "private residence" is defined as a house or dwelling wherein not more than two families reside and shall not include an apartment house having facilities for housing more than two families, nor a boarding or roominghouse where there are five or more boarders or roomers.

2. Schools and colleges shall not include private colleges or schools wherein only specialized subjects, such as law, stenography, business, music, art, medicine, dentistry, vocational occupations and other special subjects are taught.

C. In determining the distances from any private residence or branch of the Nashville Public Library or place of worship, the distance shall be measured from the center of the main entrance of such structure and following the usual and customary path of pedestrian travel to the center of the main entrance of the proposed retail liquor store.

D. In determining distance from any schoolground or college campus, the distance shall be measured from the nearest location access point of such schoolground or college campus to the center of the main entrance of the proposed retail liquor store following the usual and customary path of pedestrian travel. However, in no instance shall a proposed retail liquor store be located within one hundred yards of the closest property line of a schoolground or college campus following the usual and customary path of pedestrian travel. For the purposes of this subsection D, "access point" shall mean the first point at which a pedestrian is able to step onto the property of a schoolground or college campus, such as the opening or gate in a fence or similar barrier, or the property line if no such barrier exists.

E. No certificate of compliance shall be issued to any retail liquor dealer where the place of business of the applicant is located within two hundred yards of another retail liquor store, such measurement being determined by projecting a line from the entrance of the store to the middle of the street and then measuring from that point to the new location; provided, that nothing in this subsection shall prohibit or in any manner limit or affect the renewal of any retail certificate of compliance and the continuation of the operation of any retail liquor store licensed and in operation on May 1, 1968. The provisions of this subsection shall not be applicable to an artisan distillery as defined in Section 17.04.060 of the metropolitan code.

F. No certificate of compliance for the retail sale of liquor shall be issued where the applicant's proposed retail liquor store adjoins, abuts or is adjacent to an existing branch of the Nashville Public Library, a place of worship or school.

G. No certificate of compliance shall be issued under this chapter to any retailer where the place of business of the applicant is located within fifty yards of any place of worship within the boundaries of Fifth Avenue North to the west, Church Street to the north, the Cumberland River to the east, and Broadway to the south. (Amdt. 1 to Ord. BL2020-324 § 1, 2020; Ord. BL2020-324 § 1, 2020; Ord. BL2017-654 § 7, 2017; Ord. BL2011-863 § 4, 2011; Ord. BL2010-617 § 2, 2010; Ord. 90-1339 § 1 (5-23), 1990; prior code § 5-2-49)

7.16.120 Reserved.

Editor's note—Ord. BL2013-388, § 1, adopted April 2, 2013, repealed § 7.16.120, which pertained to residency and stock ownership requirements and derived from prior Code § 5-2-43; Ord. 90-1339 § 1 (5-1), 1990; Ord. BL2011-41 § 1, 2011.

7.16.130 Fee payment restrictions.

The certificate of compliance fee for every license issued under this chapter shall be payable by the person making application for such certificate of compliance and to whom it is issued, and no other person shall pay for any certificate of compliance issued under this

chapter. In addition to any other penalty that may be imposed, a violation of this section shall authorize and require the revocation of the certificate of compliance, the fee for which was paid by another, and also the revocation of the certificate of compliance, if any, of the person so paying for the license of another. (Ord. 90-1339 § 1 (5-18), 1990; prior code § 5-2-42)

7.16.140 Issuance authority.

The mayor may, subject to the restrictions of this chapter, cause a certificate of compliance to be issued. (Ord. 90-1339 § (5-22), 1990; prior code § 5-2-48)

7.16.150 Effect of conviction of violating alcoholic beverage laws.

No certificate of compliance required by this chapter, or which may be issued hereunder, shall under any condition be issued to any person who, within ten years preceding application for such license or permit, shall have been convicted of any offense under the laws of the state, or of any state of the United States, prohibiting or regulating the sale, possession, transportation, storing or otherwise handling alcoholic beverages or who has during such period been engaged in business, alone or with others, in violation of any of such laws or rules and regulations promulgated pursuant thereto, as they exist on March 2, 1939, or may exist hereafter. (Ord. 90-1339 § 1 (5-21), 1990; prior code § 5-2-45)

7.16.160 Expiration of permit.

A certificate of compliance issued pursuant to this chapter shall remain valid unless there is a change of ownership or location, in which instance a new certificate of compliance shall be required. (Ord. BL2024-583 § 3, 2024; Ord. 90-1339 § 1 (5-13), 1990; prior code § 5-2-37)

7.16.170 Nontransferable—Temporary agents authorized when.

The holder of a license may not sell, assign or transfer such license to any other person; provided, however, that licensees who are serving in the military forces of the United States in time of war may appoint an agent to operate under the license of the licensee during the absence of the licensee. In such instances, the license shall continue to be carried and renewed in the name of the owner. The agent of the licensee shall conform to all the requirements of a licensee under this chapter, including the furnishing of a certificate of compliance. No person who is ineligible to obtain a license under this chapter shall be eligible to serve as the agent of a licensee under this section. (Ord. BL2024-583 § 4, 2024; Ord. 90-1339 § 1 (5-15), 1990; prior code § 5-2-39)

7.16.180 Premises removal, relocation, transfer conditions.

A. Nothing in this chapter shall prohibit the removal from one location to another by a retailer already licensed, provided the location to which removal is sought is within one thousand twelve hundred feet of the present location of the premises so licensed. In such cases where removal is caused by the metropolitan government, state or federal government acquiring the property for public projects, however, the location to which removal is sought may be permitted within three thousand six hundred feet of the present location of the premises so licensed. In permitting the transfer of a certificate of compliance issued under this chapter, the certification of the mayor shall not issue unless the transferee meets all the requirements for the original issuance of the certificate of compliance.

B. Whenever a licensee whose premises is within the area defined in Section 7.16.030 loses his location, caused by no fault of the licensee himself, the licensee may be permitted to relocate within the urban services district area referred to in Section 7.16.030 to any suitable location within the urban services area upon approval by the mayor and the alcoholic beverage commission, which the mayor shall not grant except in cases where the transferee meets all requirements for the original issuance of a certificate of compliance for the proposed location. (Ord. 90-1339 § 1 (5-16), 1990; prior code § 5-2-40)

7.16.190 Effect of felony conviction involving moral turpitude.

A. No person shall make application who has been convicted of a felony involving moral turpitude within ten years prior to the time he or the concern with which he is connected shall make application; provided, that this provision shall not apply to any person who has been so convicted, but whose rights of citizenship have been restored or judgment of infamy has been removed by a court of competent jurisdiction, and in case of any such conviction occurring after a license has been issued and received, the certificate of compliance shall immediately be revoked, if such convicted felon is an individual licensee, and, if not, the partnership, corporation or association with which he is connected shall immediately discharge him.

B. No wholesaler or retailer shall employ in the storage, sale or distribution of alcoholic beverages, any person who, within ten years prior to the date of his

employment, shall have been convicted of a felony involving moral turpitude, and in case an employee should be so convicted he shall be immediately discharged; provided, that this provision shall not apply to any person who has been so convicted, but whose rights of citizenship have been restored, or judgment of infamy has been removed by a court of competent jurisdiction.

(Ord. 90-1339 § 1 (5-20), 1990; prior code § 5-2-44)

Chapter 7.20

BEER AND ALCOHOLIC BEVERAGES OF LESS THAN EIGHT PERCENT*

Sections:

7.20.010	**More than one place of business—Permitted when.**
7.20.020	**Suspension and revocation of permit—Authority.**

Wholesalers and Manufacturers

7.20.010 More than one place of business—Permitted when.

A. No wholesaler or distributor shall maintain more than one place of business unless such wholesaler or distributor has received a separate permit from the beer permit board for each place of business.

B. If a wholesaler or distributor maintains a place of business that is contiguous to another permitted location, the requirement in subsection A. for separate permits from the beer permit board for each location shall not apply.

C. Except sales from trucks by salesmen, no beer shall be transferred from, sold in, stored in, brought to rest in, sold from, possessed in, receipted for at, manufactured, wholesaled, or distributed from any other place, building, or location, except from such building, place, or location identified on the wholesaler, distributor, or manufacturer's beer permit. No beer shall be transferred to a retailer or any other purchaser except from the location identified on the wholesaler, distributor, or manufacturer's beer permit(s). (Ord. BL2013-500 § 1, 2013; Ord. BL2012-114, § 1, 2012; Ord. 99-1794 § 16 (part), 1999; Ord. 93-579 §§ 2, 3, 1993; prior code § 5-2-69)

7.20.020 Suspension and revocation of permit—Authority.

In addition to any other penalty which may be imposed, the beer permit board shall have the power, within its discretion, in addition to any other penalty imposed, to suspend for a fixed period of time or to revoke permanently any wholesaler, distributor, retailer or manufacturer's beer permit, for any violation of this article, upon giving written notice to such wholesaler, distributor, retailer or manufacturer, in the manner and by the procedure prescribed by ordinance and the rules and regulations of the beer permit board governing the revocation of permits issued by it. (Ord. 99-1794 § 16 (part), 1999; Ord. 93-579 § 4, 1993; prior code § 5-2-71)

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*__Editor's note—__Ord. BL2017-584, § 8, adopted March 7, 2017, renamed Ch. 7.20 to read as herein set out. Formerly, said chapter was entitled "Beer and Alcoholic Beverages of Less than Five Percent."

Chapter 7.24

ALCOHOLIC BEVERAGE USE RESTRICTIONS

Sections:

7.24.010	**Retail liquor stores—Maximum number allowed.**
7.24.020	**Minors prohibited when—Exceptions.**
7.24.030	**Prohibited acts or conduct—Enforcement authority.**
7.24.040	**Alcoholic beverages in open containers.**

7.24.010 Retail liquor stores—Maximum number allowed.

The number of retail liquor stores in the area of the metropolitan government shall be limited to one per five thousand five hundred inhabitants of the entire metropolitan government area according to the 1970 federal census of population and each succeeding federal decennial census. Retail liquor stores located in satellite cities shall be included in the number authorized for Metropolitan Nashville and Davidson County. (Prior code § 5-1-33)

7.24.020 Minors prohibited when—Exceptions.

A. It is unlawful for any child under the age of nineteen years:

1. To be present in an automobile on any public street or highway when alcoholic beverages are consumed therein;

2. To be present in any public park not under the jurisdiction of the metropolitan board of parks and recreation or in any other place of public resort and be a companion of or otherwise associated with any person who is consuming alcoholic beverages;

3. Provided, nothing herein shall apply to establishments licensed to serve alcoholic beverages.

B. The provisions of this section shall not apply to a child who is accompanied by his parent, guardian or other adult person who has obtained written consent from the parent or guardian for the child to be present at such place. (Prior code § 5-1-32)

7.24.030 Prohibited acts or conduct—Enforcement authority.

A. In addition to the other duties imposed by the metropolitan beer permit board by the Metropolitan Code of Laws, it shall be the duty of such board to enforce the provisions of this section and revoke or suspend the beer permit of any person, firm, corporation, syndicate or association, upon notice and hearing, for violation of the provisions of this section.

B. The following acts or conduct have been declared contrary to public policy by the General Assembly of the State of Tennessee when such activities take place upon premises licensed by the alcoholic beverage commission, pursuant to Tennessee Code Annotated Sections 57-4-101, et seq.; and the same are declared to be against the public policy of the Metropolitan Government of Nashville and Davidson County, and therefore, no beer permit shall be held at any premises where such contract or acts are permitted:

1. To employ, use or allow any person in the sale or service of beer or like alcoholic beverages in or upon the premises of a permittee while such person is unclothed or in such attire, costume or clothing as to expose to view any portion of the female breast below the top of the areola or any portion of the pubic hair, anus, cleft of the buttocks, vulva or genitals;

2. To employ, use or allow the services of any hostess or other person to mingle with the patrons while such hostess or other person is unclothed or in such attire, costume or clothing as described in subdivision 1 of this subsection;

3. To encourage or permit any person on the premises of a permittee to touch, caress or fondle the breast, buttocks, anus or genitals of any other person;

4. To permit any employee or person to wear or use any device or covering, exposed to view, which simulates the breast, genitals, anus, pubic hair or any portion thereof.

C. Acts or conduct on premises licensed by the alcoholic beverage commission pursuant to Tennessee Code Annotated Sections 57-4-101, et seq. have been deemed contrary to public policy by the General Assembly of the State of Tennessee, and are declared against the public policy of the Metropolitan Government of Nashville and Davidson County; and, therefore, no beer permit shall be held at any premises where such conduct or acts are permitted. Live entertainment is permitted on premises of a permittee except that:

1. No permittee shall permit any person to perform acts of or acts which simulate:

a. Sexual intercourse, masturbation, sodomy, bestiality, oral copulation, flagellation or any sexual acts which are prohibited by law;

b. The touching, caressing or fondling of the breast, buttocks, anus or genitals;

c. The displaying of the pubic hair, anus, vulva or genitals.

2. Subject to the provisions of subdivision 1 of this subsection, any entertainer who is employed in whole or in part by the permittee to dance at such permittee's premises shall perform only upon a stage at least eighteen inches above the immediate floor level and removed at least six feet from the nearest patron.

3. No permittee shall permit any person to use artificial devices or inanimate objects to depict any of the prohibited activities described above.

4. No permittee shall permit any person to remain in or upon the premises who exposes to public view any portion of his or her genitals or anus.

D. The following acts or conduct have been declared contrary to public policy by the General Assembly of the State of Tennessee when such activities take place upon premises licensed by the alcoholic beverage commission, pursuant to Tennessee Code Annotated Sections 57-4-101, et seq.; and the same are declared to be against the public policy of the Metropolitan Government of Nashville and Davidson County; and, therefore, no beer permit shall be held at any premises where such conduct or acts are permitted:

1. The showing of film, still pictures, electronic reproduction, or other visual reproductions depicting:

a. Acts or simulated acts of sexual intercourse, masturbation, sodomy, bestiality, oral copulation, flagellation or any sexual acts which are prohibited by law;

b. Any person being touch, caressed or fondled on the breast, buttocks, anus or genitals;

c. Scenes wherein a person displays the vulva or the anus or the genitals;

d. Scenes wherein artificial devices or inanimate objects are employed to depict, or drawings are employed to portray, any of the prohibited activities described above. (Ord. 90-1339 § 1 (5-7), 1990; prior code § 5-1-34)

7.24.040 Alcoholic beverages in open containers.

A. It shall be a violation for any person, while in or on a street, alley, sidewalk, parking lot, parking garage or other area generally open to the public, except (1) enclosed structures, (2) premises owned by scientific, religious or educational institutions, or (3) premises specifically permitted or licensed for the on-premises consumption of alcoholic beverages or beer; to have in their possession beer, ale, wine or other alcoholic beverage for the purpose of consumption in a glass, aluminum, or metal container unless such container is commercially sealed.

B. Possession of beer, ale, wine or other alcoholic beverage in an open container not permitted in subsection A hereof shall be prima facie evidence of having said beverage for the purpose of consumption. (Amdt. 2 to Ord. BL2022-1089 § 22, 2022; Ord. BL2022-1089 § 22, 2022; Ord. BL2021-1011 § 1, 2021; Amdt. 1 to Ord. BL2021-911 § 4, 2021; Ord. BL2021-911 § 4, 2021; Ord. 92-322 §§ 1, 2, 1992)

Title 8

ANIMALS

Chapters:

8.04	**Animals Generally**
8.08	**Vicious Dogs**
8.12	**Miscellaneous Animal Control Regulations**
8.16	**Wildlife**
8.20	**Animal Control Regulations**
8.24	**Animal Control Regulations—Second Civil District**
8.30	**Retail Sale of Dogs and Cats at Pet Stores**

Chapter 8.04

ANIMALS GENERALLY*

Sections:

8.04.010	**Definitions.**
8.04.020	**Rabies vaccination requirements.**
8.04.030	**Pet licenses—Requirements.**
8.04.040	**Licenses—Issuance of license—Records.**
8.04.050	**Collection and disposition of fees.**
8.04.060	**Reserved.**
8.04.070	**License tags.**
8.04.080	**Failure to pay license fee.**
8.04.090	**Confinement required—Female dogs in heat.**
8.04.100	**Confinement required—Animals suspected of having rabies.**
8.04.110	**Guard dogs.**
8.04.120	**Animals at large.**
8.04.130	**Authority to impound dogs.**
8.04.140	**Impoundment and fees—Redemption.**
8.04.150	**Disposition of unclaimed or unlicensed dogs.**
8.04.160	**Concealment of dogs.**
8.04.170	**Interfering with police officers or health department officials unlawful.**
8.04.180	**Exemption from chapter—Dogs in transport.**
8.04.190	**Removal of excrement.**
8.04.200	**Pet dogs in outdoor dining areas at restaurants.**
8.04.210	**Violations; civil infractions; civil penalties.**

8.04.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings ascribed to them by this section:

"Animal care and control division" means the animal care and control services division of the department of health.

"At large" means any animal, excluding cats, that is not physically restrained on owner's or keeper's premises including motorized vehicles in a manner that physically prevents the animal from leaving the premises or reaching any public areas; or, is not physically restrained when on public property, or any public area, by a leash, tether or other physical control and under the physical control of a capable person, as except as otherwise authorized by law.

"Cat" means all domesticated members of the feline family.

"Community cat" means any free roaming cat that may be cared for by one or more residents of the immediate area. Community cats are exempt from any licensing, stray, abandonment, and at-large provisions directed towards owned animals.

"Community cat caregiver" means a person who provides care, including food, shelter, or medical care to a community cat, while not being considered the owner, custodian, harborer, controller, or keeper of a community cat or to have care or charge of a community cat. Caregivers should make reasonable efforts to sterilize and vaccinate cats against rabies. Community cat caregivers may redeem community cats from the shelter without proof of ownership and are exempt from any charges and/or fees.

"Compendium" or "Rabies compendium" means the most recent issue of the national *Compendium of Animal Rabies Prevention and Control* published by the Association of State Public Health Veterinarians.

"Department" means the Department of Health of the Metropolitan Government of Nashville and Davidson County, Tennessee, and shall include its board, agents, employees and activities.

"Director of health" means the director of health or the director of health's designated representative.

"Dog" means all domesticated members of the canine family.

"Extreme weather conditions" means those conditions that pose life-threatening health conditions to animals who are dependent upon their owners' care and protection. Extreme weather conditions may include temperatures reported and verified by the National Weather Service below 32 degrees Fahrenheit (0 degrees Celsius), temperatures above 95 degrees Fahrenheit (35 degrees Celsius), or in instances when the National Weather Service issues a weather advisory for a tornado warning or severe thunderstorm warning.

"Guard dog" means any dog trained to protect persons or property by attacking or threatening to attack any person found within the area patrolled by the dog.

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*__Editor's note—__Ord. BL2023-1688, § 1, adopted May 16, 2023, repealed the former Ch. 8.04, §§ 8.04.010—8.04.190, and enacted a new Ch. 8.04 as set out herein. The former Ch. 8.04 pertained to dogs and derived from prior Code §§ 8-1-2—8-1-10, 8-1-12—8-1-16, 8-1-17, as amended. See the Ordinance List and Disposition Table for complete derivation.

"Livestock" means all animals of the equine, ovine, bovine, caprine, poultry, or swine and similar classes and includes, but is not limited to, goats, sheep, mules, horses, hogs, cows or cattle and domesticated poultry.

"Owner" means any person having a right of property in any domesticated animal or who keeps or harbors an animal, or who has it in the person's care, or acts as its custodian, or who permits an animal to remain on or about any premises.

"Person" means any natural person, individual, firm, society, corporation, partnership, association, trust, estate, or other legal entity. If the person is a minor as defined by statute, the minor's parent or legal guardian shall be the owner for the purposes of this chapter.

"Pet" means a domestic or other animal allowed under this chapter to be kept as a companion.

"Quarantine" means a state of strictly enforced isolation from other animals or the public imposed to prevent the spread of disease.

"Vaccination" means the process whereby an animal is immunized against rabies using a vaccine and a technique approved by the board of health. (Ord. BL2023-1688 § 1, 2023)

8.04.020 Rabies vaccination requirements.

A. It is unlawful for any owner to keep, harbor or permit to remain on or about any premises any dog over six months of age which has not been vaccinated against rabies as required by the board of health. A certificate of such vaccination shall be issued by a licensed veterinarian duly authorized to administer such a vaccination, and such certificate shall be kept by the person who owns, keeps, harbors such dog, subject to the inspection of the director of health. The certificate of vaccination shall clearly identify the date by which re-vaccination is required.

B. Every person who is the owner of any dog or cat over the age of six months within the jurisdiction of the metropolitan government shall have such animal vaccinated against rabies with a vaccine approved by the United States Department of Agriculture and administered only by or under the supervision of a licensed veterinarian. The vaccination schedule shall be the following:

Dogs:

1. Within 30 days after a dog reaches the age of six months a primary or first vaccine dose must be given, which will be and is valid for only one year. The second and subsequent vaccine doses can be a "three-year vaccine" certified by the veterinarian and will be valid for three years. If an approved "three-year vaccine" is not used, then the dog must be vaccinated annually.

2. Within thirty days of acquiring the dog if there is no documented vaccination history; or

3. Within thirty days after entering the jurisdiction of this chapter if the owner cannot provide documented vaccination history.

Cats:

1. Within 30 days after a cat reaches the age of six months a primary or first vaccine dose must be given and is valid for only one year. The second and subsequent vaccine doses can be a "three- year vaccine," certified by the veterinarian and will be valid for three years. If an approved "three year vaccine" is not used, then the cat must be vaccinated annually.

2. Within thirty days of acquiring the cat if there is no documented vaccination history; or

3. Within thirty days after entering the jurisdiction of this chapter if the owner cannot provide documented vaccination history.

C. Evidence of such vaccination shall consist of a certificate bearing the owner's name and address, number of the vaccination tag issued, date of vaccination, date the dog or cat shall be revaccinated, description and sex of the dog or cat vaccinated, type and lot number of vaccine administered and the name of the licensed veterinarian administering the vaccine. Such certificate shall be kept by the owner, subject to the inspection of the director of health. (Ord. BL2023-1688 § 1, 2023)

8.04.030 Pet licenses—Requirements.

A. Any person owning, keeping or harboring on the premises where they reside, any dog or cat six months of age or over, shall pay to the director of health a license fee in accordance with the current fee schedule established by Section 8.04.140(A). Such fee schedule, and all amended fee schedules, shall be approved by the board of health and authorized by passage of a resolution by the council. Each license issued shall be valid until the required revaccination date as specified on the certificate.

B. The license fees authorized pursuant to this section shall be set and approved by the board of health

C. 1. Persons operating kennels where dogs are bred for sale shall not be required to pay the above license fee, but in lieu thereof shall pay a license fee as kennel keeper based upon the number of dogs kept by the kennel in accordance with the current fee schedule established by Section 8.04.140(A).

2. At the time such license fee is paid, there shall be presented to the department of health, at the time of making the application, an affidavit showing under oath the number of dogs to be kept at the kennel for which application is made. All sums collected hereunder shall be collected by the director of health annually on or before April 1st, or at such time as the kennel shall be open for operation, as provided herein.

D. 1. Within thirty days after a dog reaches the age of six months, a license tag must be obtained, which will be and is valid for only one year;

2. Within thirty days of acquiring the dog if there is no documented license tag history; or

3. Within thirty days after entering the jurisdiction of this chapter if the owner cannot provide documented license tag history.

4. An animal displaying a current license from jurisdictions outside the county, but within the state, shall not require licensing under this chapter until expiration of the current license. (Ord. BL2023-1688 § 1, 2023)

8.04.040 Licenses—Issuance of license—Records.

It shall be the duty of the director of health to collect the license fees under this chapter. The director of health shall record the information specified under state law. Unless such certificate of vaccination is exhibited at the time request is made for a license, the director of health shall issue no license. On receipt of the payment of the license fee, the director of health shall issue to the person paying the same a license to be furnished by the metropolitan government, showing the name of the owner of the animal or kennel on which such license fee is paid, the date and amount of such payment, the license tag number issued for each animal and the date of vaccination of such animal, and shall deliver to the owner a license tag bearing the serial number and the year through which the license fee is paid. (Ord. BL2023-1688 § 1, 2023)

8.04.050 Collection and disposition of fees.

It shall be the duty of the director of health to collect all fees imposed under this chapter. The director of health shall appoint certain officials as may be necessary to work in cooperation with and under the supervision of the director of finance to establish and prescribe the times and manner in which the fees received shall be deposited in the general fund. (Ord. BL2023-1688 § 1, 2023)

8.04.060 Reserved.

8.04.070 License tags.

A. Dog license tags issued pursuant to this chapter shall be supplied by the department of health, to be made available in its budget, out of the revenues of the metropolitan government.

B. It shall be the duty of the owner to attach such license tag to a collar which shall be worn at all times by each dog licensed. In the event of the loss of such license tag, the department of health shall issue a duplicate tag, for which the owner shall pay a fee in accordance with the current fee schedule established by Section 8.04.140(A), and such duplicate tags shall be forthwith attached to the dog collar and at all times worn thereon; provided, that the collar may be removed in cases of hunting dogs while in chase, returning from the chase, or while in training.

C. Nothing in this section shall be construed as permitting the use of an unvaccinated dog in either the hunt or chase. A dog tag shall not be transferable from one dog to another.

D. No refunds shall be made on any dog license fee. (Ord. BL2023-1688 § 1, 2023)

8.04.080 Failure to pay license fee.

It is unlawful for any person or owner to keep or harbor any dog for which a license fee on such dog has not been paid as required by this chapter. (Ord. BL2023-1688 § 1, 2023)

8.04.090 Confinement required—Female dogs in heat.

Every owner of a female dog is required to confine the same during the time she is in heat. The confinement required by this section shall be such that other dogs may not get to the female dog. It is unlawful for any owner of a female dog not to so confine such dog as required by this section. (Ord. BL2023-1688 § 1, 2023)

8.04.100 Confinement required—Animals suspected of having rabies.

A. If any animal has bitten any person, is suspected of having bitten any person or is for any reason suspected of being infected with rabies, the animal may be required to be placed under an observation period either by confinement or by quarantine for a period of time deemed necessary by the animal care and control division.

B. The act of investigating the bite or rabies exposure and placing the animal under observation by confinement or quarantine shall be accomplished by the animal care and control division after consultation with the director of health, if necessary.

C. The confinement, quarantine or other disposition of the animal shall follow the current recommendations in the national rabies compendium unless more specific guidelines are designated by duly promulgated rules of the Tennessee Department of Health or as deemed necessary by the director of health to protect the public's health.

D. The observation period by confinement or quarantine may occur at the animal owner's home at the discretion of the department or the animal care and control division.

E. The owner will be responsible for payment of all boarding costs and other fees as may be required to humanely and safely keep an animal during the observation or quarantine period. (Ord. BL2023-1688 § 1, 2023)

8.04.110 Guard dogs.

It is unlawful for any person to place or maintain guard dogs in any area of the metropolitan government for the protection of persons or property unless the following provisions are met:

A. The guard dog shall be confined to the property or held by a person on a leash; or

B. The owner or other persons in control of the premises upon which a guard dog is maintained shall post warning signs stating that such a dog is on the premises. At least one such sign shall be posted at each driveway or entranceway to said premises. Such signs shall be in lettering clearly visible from either the curb line or a distance of fifty feet, whichever is less, and shall contain a telephone number where some person responsible for controlling such guard dog can be reached twenty-four hours a day.

C. The owner of the dog, and/or owner of the property in which the dog is present keeps records of training completed.

D. The above provisions shall not be applicable to (1) dogs used in law enforcement by federal, state, or local law enforcement agencies or (2) dogs used by licensed security firms which have sufficient training. (Ord. BL2023-1688 § 1, 2023)

8.04.120 Animals at large.

A. Any animal found running at large may be seized by the proper authorities of the health and police departments of the metropolitan government.

B. No person owning or having possession, charge, care, custody, or control of any animal shall cause, permit, or allow the animal to stray or in any manner to run at large.

C. Any person owning or having possession, charge, care, custody, or control of any animal which destroys or desecrates public or private property, chases persons, livestock, cars, or other vehicles, or otherwise causes a disturbance while running at large on public or private property shall be deemed to have committed a violation of this chapter.

D. Every person owning or having possession, charge, care, custody, or control of any animal shall keep such animal exclusively upon the person's own premises; provided, however, that such animal may be off such premises only if it is restrained by the owner or such animal is accompanied by the owner and the owner has physical control of the animal.

E. Subsections A and B of this section shall not apply to a dog on a hunt or chase, a dog in training, a dog guarding or driving stock, a police dog, a working dog, cats, or any animal participating in an organized field competition, or as otherwise authorized by law.

F. The penalties for violation of this section shall be as follows:

1. First Violation. The penalty for the first violation of this section shall be fifty dollars per animal in violation. This penalty may be waived by the court upon proof in the form of a certificate from a licensed veterinarian verified by the metropolitan health department that each animal in violation has been spayed or neutered.

2. Second Violation. The penalty for the second violation of this section shall be fifty dollars for each animal in violation.

3. Third Violation. The penalty for the third violation of this section shall be fifty dollars for each animal in violation. Further the court shall order that any outside area of the owner's premises in which the animal or animals may be kept shall be enclosed by a fence.

4. Fourth Violation. The penalty for the fourth violation of this section shall be fifty dollars for each animal violation and the court shall order that any outside area of the owner's premises in which the animal or animals might be kept or placed even if on a temporary basis shall be enclosed by fencing that is verified as secure by the metropolitan health department.

5. Fifth Violation. The penalty for the fifth violation of this section shall be a penalty of fifty dollars and the animal or animals may be seized and impounded by the metropolitan health department, and may not be released to the owner, and may otherwise be disposed of in the manner provided by this chapter. (Amdt. 2 to Ord. BL2023-1688 § 1, 2023; Amdt. 1 to Ord. BL2023-1688 § 1, 2023; Ord. BL2023-1688 § 1, 2023)

8.04.130 Authority to impound dogs.

All law enforcement and animal and care and control officers shall have the right to lawfully take up and put into the animal shelter of the metropolitan government any dog found in violation of any provision of this chapter. (Ord. BL2023-1688 § 1, 2023)

8.04.140 Impoundment and fees—Redemption.

A. When any dog is impounded pursuant to the authority granted by the Metropolitan Code, and if the dog bears a tag or identification, an attempt shall be made to contact the owner to appear within seven days and redeem said dog. The owner shall pay for each dog seized and impounded an impoundment fee; and for each day or fraction thereof the dog remains unclaimed, a boarding fee, both in accordance with the current fee schedule. Such fee schedule, and all amended fee schedules, shall be approved by the board of health and authorized by passage of a resolution by the council. The fee schedule may also set forth amounts to be charged for other incidental costs, such as fees for microchips.

B. A current copy of the fee schedule shall be posted on the metropolitan public health department website and in a conspicuous place in the metropolitan animal care and control animal shelter. A copy shall also be kept in the office of metropolitan public health department's bureau of environmental health services.

C. Three dollars of the daily dog boarding fees shall be deposited regularly with the metropolitan treasurer in a separate revenue account and shall be used to fund animal education and welfare programs of the metropolitan animal care and control division of the metropolitan health department.

D. If the dog impounded has not been licensed or vaccinated against rabies as required by law, the owner shall, before being permitted to regain possession of the dog, have the dog vaccinated and licensed. The director of health is also authorized to have a veterinarian humanely implant any animal lawfully impounded with an electronic microchip that will allow the animal to be positively identified, which shall be at the owners or possessor's sole expense, before being released back into their custody.

The impoundment and boarding fees authorized pursuant to this section shall be set and approved by the board of health.

E. The director of health is given the discretion to waive a portion or all of the fees imposed pursuant to this section when the dog has been impounded through no fault of the owner as determined by the director of health. (Ord. BL2023-1688 § 1, 2023)

8.04.150 Disposition of unclaimed or unlicensed dogs.

A. It shall be the duty of the director of health to keep any licensed dog impounded for running at large or impounded for a period of seven days from the date notice is mailed to the owner of record as determined by the license. Any unlicensed dog that is impounded shall be kept for a period of three working days beginning with the date of seizure. At the expiration of the applicable period of days such impounded dog may be disposed of as follows:

1. Whenever any individual shall apply to the department of health for permission to adopt or buy any impounded dog remaining unclaimed, the director of health may sell to the individual such unclaimed dogs or surrender such dogs to the individual for adoption upon a payment of a fee set by the board of health.

2. Whenever any dogs remain unclaimed, such dogs may be humanely disposed of in a manner to be determined by the director of health.

B. Any person who does not desire to pay the license fee, provided by this chapter upon any dog owned, kept or harbored on premises owned by the person shall bring such dog to the animal shelter operated by the metropolitan government to be disposed of.

C. Notwithstanding subsection A of this section, the director of health, upon the advice of a licensed veterinarian, may dispose of a dog immediately if he/she determines the dog is suffering from rabies or other infectious or dangerous diseases, or is in misery, or if he/she determines such immediate disposition furthers the public's health and safety.

D. The department of health is authorized to charge a reduced adoption fee described in this section for organizations that have applied for and received certification under health department policy. (Ord. BL2023-1688 § 1, 2023)

8.04.160 Concealment of dogs.

No person shall hide, conceal or aid or assist in hiding or concealing any dog owned, kept or harbored in violation of any of the provisions of this title. (Ord. BL2023-1688 § 1, 2023)

8.04.170 Interfering with police officers or health department officials unlawful.

It is unlawful for any person to interfere with or hinder any police officer or any official of the department in the discharge or apparent discharge of the officer or official's duty enforcing the provision of this chapter. (Ord. BL2023-1688 § 1, 2023)

8.04.180 Exemption from chapter—Dogs in transport.

An owner transporting a dog through the metropolitan government area is exempt from the provisions of this

chapter; provided, that such dog shall be securely confined or on a leash during its transportation through the metropolitan government area; and provided further, that such dog shall not remain in the metropolitan government area for more than thirty days. (Ord. BL2023-1688 § 1, 2023)

8.04.190 Removal of excrement.

A dog owner shall clean up and remove any excrement left by the owner's dog(s) on any public property or private property not owned or lawfully possessed by the dog owner. Violations of this section shall be punishable by a fifty dollar fine. (Ord. BL2023-1688 § 1, 2023)

8.04.200 Pet dogs in outdoor dining areas at restaurants.

A. Definition of "pet dog." For purposes of this section, "pet dog" means a dog other than a service or guide dog assisting a person with a disability or a dog actually engaged in training to become a service or guide dog.

B. Permit authorizing pet dogs in outdoor dining areas of restaurants. The owner or proprietor of any restaurant which maintains an outdoor dining area may apply to the department for a permit authorizing persons to allow pet dogs to be present upon the premises of the outdoor dining area subject to the following terms and conditions:

1. All pet dogs brought upon the premises of a restaurant outdoor dining area shall have a current rabies vaccination and current license tag affixed to the dog's collar as required by Chapter 8.04 of the Metropolitan Code.

2. No pet dog shall be present in the interior of any restaurant or in any area where food is prepared;

3. The restaurant shall have the right to refuse to serve the owner of a pet dog if the owner fails to exercise reasonable control over the pet dog or the pet dog otherwise is behaving in a manner that compromises or threatens to compromise the health or safety of any person present in the restaurant;

4. All restaurant employees shall wash their hands promptly after touching, petting or otherwise handling a pet dog. Employees shall be prohibited from touching, petting or otherwise handling pet dogs while serving food or beverages, or handling tableware, or before entering other parts of the public food service establishment;

5. Employees and patrons shall be instructed that they shall not allow pet dogs to come into contact with serving dishes, utensils, tableware, linens, paper products or any other items involved in food service operations;

6. Patrons shall keep their pet dogs on a non-retractable leash no longer than six feet at all times and keep their pet dogs under reasonable control;

7. Pet dogs shall not be allowed on chairs, tables or other furnishings;

8. Accidents involving pet dog waste shall be cleaned immediately and the area sanitized with an approved product. A kit with the appropriate materials for this purpose shall be kept near the designated outdoor area;

9. A sign or signs reminding employees and patrons of the applicable rules shall be posted in a visible location upon the premises of the outdoor dining area.

10. Pet dogs shall not be permitted to travel through indoor or nondesignated portions of the restaurant, and ingress and egress to the designated outdoor portions of the restaurant shall not require entrance into or passage through any indoor area of the restaurant.

C. Permit fee. Any restaurant owner and/or proprietor wishing to obtain a permit authorizing pet dogs in outdoor dining areas shall complete an application form provided by the department and pay an annual permit fee in the amount of twenty dollars. The application shall request such information as deemed appropriate by the department, including, but not limited to, the names and contact information for at least one person responsible for management of the business during all hours when the business is open to the public. The application also shall contain a certification that the applicant is aware of all laws, ordinances, rules and regulations pertaining to permitting dogs to be in outdoor dining areas, together with an affirmative statement to be signed by the applicant verifying that the applicant shall abide by all such laws, ordinances, rules and regulations at all times.

D. Any applicant/permittee shall fully cooperate with any governmental entity having responsibility for enforcement of Title 53, Chapter 1 of the Tennessee Code Annotated, and any other applicable statutes and ordinances.

E. Enforcement. Obligations imposed by this ordinance on the owner of or person responsible for a pet dog shall be enforced against the owner or the person responsible for the dog. Obligations imposed by this section on the restaurant or the employees thereof shall be enforced against the employee(s) or agent(s) of the restaurant responsible for the violation. Obligations that may reasonably be construed as being imposed against either the owner of or person responsible for a pet dog, or the employee(s) or agent(s) of the restaurant, may be enforced against the owner of or person responsible for the pet dog, or the employee(s) or agent(s) of the restaurant responsible for the violation, or both. Any violation of this section by an agent or employee of the restaurant, or by the owner of or person responsible for

the pet dog shall result in a fine not to exceed fifty dollars for each offense. The owner or person responsible for a pet dog that fails to clean up dog waste within a restaurant outdoor dining area as required by subsection B.8 of this section shall be cited under the provisions of this section.

F. Revocation of permit. In addition to the penalties set forth in subsection E. of this section, any violation of this ordinance by the holder of the permit shall also subject the permit holder to revocation of the permit. (Ord. BL2023-1688 § 1, 2023)

8.04.210 Violations; civil infractions; civil penalties.

A. Any violation of this chapter is a civil infraction.

B. Any person who has committed an act in violation of Title 8 of this code may receive a citation from the animal care and control division by an animal care and control officer or from a law enforcement officer who has probable cause to believe that the person has committed a violation of Title 8 of this code.

C. The general sessions court shall have jurisdiction over all violations of this chapter.

D. Any violation of this chapter may be punishable by a civil penalty of not more than $50.00. Each day that any section of this chapter is violated shall constitute a separate punishable offense.

E. Any person issued a citation from an animal care and control or law enforcement officer may be deemed to be charged with a civil violation and shall comply with the directives on the citation. (Ord. BL2023-1688 § 1, 2023)

Chapter 8.08

VICIOUS DOGS

Sections:

8.08.010	**Definitions.**
8.08.020	**Reserved.**
8.08.030	**Vicious dogs prohibited.**
8.08.040	**Impoundment—Authorized when—Fees.**
8.08.050	**Impoundment—Court proceedings against owner.**
8.08.060	**Complaints of violations—Court findings.**

8.08.010 Definitions.

A. For the purpose of this chapter, the following terms have the following meanings:

"Bite" means a puncture or tear caused by the teeth of an animal resulting in a break of the skin sufficient to cause blood to be present in the wound.

"Confined" means securely confined indoors, or confined outdoors in a securely enclosed locked pen or structure upon the premises of the owner of such dog. Such pen or structure must have secure sides, a secure top and provide for appropriate shading. If the pen or structure has no bottom secured to the sides, the sides must be set in concrete no less than eighteen inches in the ground. The size of the pen must be of sufficient size to house and shelter the said dog comfortably but no smaller than ten feet by ten feet.

"Guard dog" means any dog trained to protect persons or property by attacking or threatening to attack any person found within the area patrolled by the dog.

"Physical device or structure" means a tether or leash, trolley system, other physical control device or any structure made of material sufficiently strong to adequately and humanely confine the animal in a manner that would prevent it from escaping the premises.

"Provocation" means any act that causes an animal to bite or attack to protect itself, offspring, owner or property.

"Secure Enclosure" means any of the following:

(1) A fully fenced pen, kennel or structure that shall remain locked with a padlock or combination lock. Such pen, kennel or structure must have secure sides, minimum of five feet high, and the director may require a secure top attached to the sides, and a secure bottom or floor attached to the sides of the structure or the sides must be embedded in the ground no less than one foot. The structure must be in compliance with the jurisdiction's building code; or

(2) A house or garage. When dogs are kept inside a house or garage as a secure enclosure, the house or garage shall have latched doors kept in good repair to prevent the accidental escape of the dog. A house, garage, patio, porch or any part of the house or condition of the structure is not a secure enclosure if the structure would allow the dog to exit the structure of its own volition; or

(3) For a vicious dog, a fully fenced pen, kennel or structure at least six feet in height, installed beneath the ground level or in concrete or pavement, or a fabricated structure to prevent digging under it. Either enclosure shall be designed to prevent the entry of children or unauthorized persons and to prevent those persons from extending appendages inside the enclosure and be equipped with a self closing and self latching gate. A "Vicious Dog" sign prescribed by the director must be posted at the entry to the owner's or keeper's premises.

"Vicious dog" means any dog which attacks and bites, or which seriously injures or kills, a person or animal on any public or private property without provocation; any dog previously declared vicious in a court of law; or any dog owned or harbored primarily or in part for the purpose of dog fighting.

B. Except as provided above, all other terms shall have the meaning as provided in Section 8.04.010 of the Metropolitan Code. (Ord. BL2023-1688 § 2, 2023; Amdt. 1 §§ 1 and 2 with Ord. 2001-842 § 2 (part), 2001; Ord. 89-737 § 1, 1989)

8.08.020 Reserved.

Editor's note—Ord. BL2023-1688, § 3, adopted May 16, 2023, repealed § 8.08.020, which pertained to guard dogs and derived from Ord. 89-737 § 4, 1989; Amdt. 1 § 3 with Ord. 2001-842 § 2 (part), 2001. The user's attention is directed to § 8.04.110.

8.08.030 Vicious dogs prohibited.

A. It shall be unlawful for any person to keep or harbor a vicious dog within the area of the metropolitan government unless said dog is confined.

B. In addition to the court actions set forth in Section 8.08.060 of this chapter, upon being found in violation of the provisions of this section, the court may order that the person do one or both of the following:

1. Be precluded from owning, harboring, or having custody or control of companion animals for a period of time that the court deems reasonable.

2. Pay appropriate fines and fees. (Amdt. 1 to Ord. BL2007-1316 § 1, 2007; Ord. BL2007-1316 § 1, 2007; Ord. 2001-842 § 2 (part), 2001; Ord. 89-737 § 2, 1989)

8.08.040 Impoundment—Authorized when—Fees.

Any vicious dog, not in compliance with the provisions of Section 8.08.030 may be taken into custody by the appropriate authorities of the department of health or of the metropolitan police department and impounded. The fees imposed by Section 8.04.130 of the Metropolitan Code shall be imposed upon and paid by the owner of such vicious dog so impounded to cover the costs of the metropolitan government in impounding said dog. (Ord. 2001-842 § 2 (part), 2001; Ord. 89-737 § 3(a), 1989)

8.08.050 Impoundment—Court proceedings against owner.

A. Upon receipt of a vicious dog complaint, the division of metro animal services shall investigate said complaint. No dog that is the subject of a vicious dog investigation may be relocated or ownership transferred pending the outcome of said investigation. Each vicious dog complaint shall be subject to the review of the director of metro animal services or his/her designee prior to initiating any action against the dog's owner.

B. If the director of metro animal services has probable cause to believe that a dog is in violation of any provision of the chapter, the animal shall be impounded at the metro animal services facility or a licensed veterinary clinic in Davidson County. The owner of the dog shall be charged with violating this chapter, and proceedings initiated in the metropolitan general sessions court against the owner. (Ord. 2001-842 § 2 (part), 2001; Ord. 89-737 § 3(b), 1989)

8.08.060 Complaints of violations—Court findings.

If a complaint has been filed in the metropolitan general sessions court against the owner of a dog for violation of this chapter, the dog shall not be released from impoundment or disposed of except on order of the court, payment of all charges and costs under this chapter, including penalties for violating this chapter. The court may, upon making a finding that the dog is a vicious dog pursuant to this chapter, order (a) the dog released from impoundment, provided the owner shall within three days after the dog has been declared vicious, provide proof that a proper enclosure to adequately confine said vicious dog has been built subject to inspection by the director of metro animal services or his/her designee; (b) the dog is transported directly from metro animal services to a licensed veterinarian where said dog shall be either tattooed or implanted with an electronic microchip for identification, a copy of the information contained thereon to be provided to the division of metro animal services; or (c) the dog be destroyed in a humane manner by the division of metro animal services. (Ord. 2001-842 § 2 (part), 2001; Ord. 89-737 § 3(c), 1989)

Chapter 8.12

MISCELLANEOUS ANIMAL CONTROL REGULATIONS

Sections:

8.12.010	**Keeping of animals that disturb the peace.**
8.12.020	**Keeping of chickens.**
8.12.030	**Cruelty to animals prohibited.**
8.12.040	**Animal baiting or fighting prohibited.**
8.12.050	**Inhumane transportation of animals.**
8.12.060	**Impoundment.**
8.12.070	**Authority for chemical capture.**
8.12.080	**Companion animal hoarding.**
8.12.090	**Animal offender school.**
8.12.100	**Outdoor sale or gifting of animals prohibited.**
8.12.110	**Pen enclosures for dogs.**

8.12.010 Keeping of animals that disturb the peace.

A. It is unlawful for any person to keep any animal, dog, bird or fowl which, by causing frequent or loud continued noise, disturbs the comfort or repose of any person in the vicinity.

B. Violation of this section shall be declared to be public nuisance which violation may be enjoined by any court of competent jurisdiction. (§ 2 of Amdt. 1 to Ord. 90-1275, 7/17/90; Ord. 90-1275 §§ 1, 2, 1990)

8.12.020 Keeping of chickens.

A. No person shall keep chickens within the metropolitan government area in such a manner that a nuisance is created.

B. The keeping of chickens shall be in compliance with all applicable zoning laws pursuant to Title 17 of the Metropolitan Code.

C. An annual permit issued by the department of health shall be required for the keeping of domesticated hens where allowed by Title 17 of the Metropolitan Code, provided that no permit shall be required for property that is zoned for agricultural uses except in the case of a school property as authorized by subsection N. of this section.

1. The annual permit to keep domesticated hens may not be assigned to another person. In addition, the permit authorizes the keeping of hens only upon the property described in the permit. Except for hens kept on school properties for educational purposes pursuant to subsection N. of this section or kept on non-commercial community garden property located both within the Gallatin Pike improvement specific plan (SP) zoning district and the East Bank redevelopment district, the permittee must occupy the residence on the property where the hens are kept as the permittee's personal, primary residence. An applicant for a permit for residential property must either own the property or have permission from the property owner to be eligible for a permit.

2. Only one permit is allowed per permittee. In the event the permittee is absent from the property for longer than sixty days, the permit automatically shall terminate and become void. The issuance of a permit does not create a vested right to renewal of the permit beyond the stated term thereof.

3. The first permit year shall extend from the date of issuance through December 31, 2013. Thereafter the permit year shall be January 1 through December 31.

4. Fees. The fee for an annual permit to keep domesticated hens is twenty-five dollars.

D. Food storage and removal. All stored food for the domesticated hens must be kept either indoors or in a weather-resistant container designed to prevent access by animals. Uneaten food shall be removed daily.

E. Enclosure.

1. All domesticated hens shall be kept outside of a habitable structure in a predator-proof enclosure, a portion of which must be a covered henhouse, and a portion of which must be a fenced area complying with the provisions of Chapter 16.24 of the Metropolitan Code applicable to the construction of fences.

2. In addition to the fenced enclosure, hens shall be provided with a covered, predator-resistant henhouse. A minimum of two square feet per hen shall be provided for henhouses and six square feet per bird for fenced enclosures.

3. Fenced enclosures and henhouses must be properly ventilated, clean, dry, and odor-free, kept in a neat and sanitary condition at all times, in a manner that will not disturb the use or enjoyment of neighboring lots due to noise, odor or other adverse impact.

4. The henhouse and fenced enclosure must provide adequate ventilation, adequate sun and shade, and must be constructed in a manner to resist access by rodents, wild birds, and predators, including dogs and cats.

5. Henhouses shall be enclosed on all sides and shall have a roof and doors. Access doors must be able to be shut and locked at night. Opening windows and vents must be covered with predator- and bird-resistant wire of less than one inch openings.

F. Sanitation, nuisance, and humane treatment.

1. Waste storage and removal. Provision must be made for the storage and removal of chicken manure. All manure for composting or fertilizing shall be contained in a well-aerated garden compost pile. All other manure not used for composting or fertilizing shall be removed. In addition, the henhouse and surrounding area must be kept free from trash and accumulated droppings.

2. No perceptible odor from the hens or the hen enclosure shall be present at any property line.

3. All feed shall be stored in a rodent and predator-proof container having a metal lid.

4. No slaughtering of domesticated hens may occur on the property.

5. No breeding of chickens shall occur on the property.

6. No domesticated hens shall be used or trained for the purpose of fighting for amusement, sport, or financial gain.

G. Application for permit. Every applicant for a permit to keep domesticated hens shall:

1. Complete and file an application on a form prescribed by the department of health.

2. Deposit the prescribed permit fee with the department of health at the time the application is filed. Any material misstatement or omission shall be grounds for denial, suspension or revocation of the permit.

3. Include with the application a picture, rendering, or design plans of the henhouse(s) to be used, as well as a description of the materials from which the henhouse is to be constructed.

H. Approval of permit. The department of health shall issue a permit if the applicant submits an affidavit attesting that he/she is in compliance with the criteria and standards in this section.

I. Denial, suspension or revocation of permit. The department of health shall deny a permit if the applicant fails to submit an affidavit demonstrating compliance with all provisions of this section. A permit to keep domesticated hens may be suspended or revoked by the department of health where there is a risk to public health or safety or for any violation of or failure to comply with any of the provisions of this section or with the provisions of any other applicable ordinance or law, provided that a permit to keep domesticated hens shall be revoked in the event a court of competent jurisdiction finds three or more separate violations of the provisions of this section and/or of Section 17.16.250.B of the Metropolitan Code within a twenty-four month period. Any denial, revocation, or suspension of a permit shall be in writing and shall include notification of the right to and procedure for appeal. In the event a permit to keep domesticated hens at a particular address is revoked pursuant to the provisions of this subsection, no new permit shall be issued by the department of health for the same address unless the property changes ownership or a new tenant is residing at the address.

J. Penalty. In addition to any other enforcement action which the metropolitan government may take, violation of any provision of this section shall be subject to a fine of fifty dollars. Each day that a violation continues shall be treated as a separate offense.

K. The department of health shall have the authority to adopt and implement rules and regulations necessary to further the provisions of this section, provided they are not in conflict with the requirements of this section.

L. Where used in this section, the designation of "department of health" shall also include the division of metropolitan animal control services.

M. [Reserved.]

N. Specific provisions for permits on Metropolitan Nashville public school properties.

1. Adequate nearby access to hand washing facilities, which include hot and cold water, single service paper towels, and hand soap, shall be provided, or, in the alternative to hand washing facilities, disposable rubber gloves shall be provided for use by all children handling the hens and/or eggs.

2. [Reserved.]

3. The applicant for a permit must provide a copy of a valid facility use agreement between the applicant and Metropolitan Nashville public schools that allows the keeping of hens on the property.

4. The applicant must provide the residential address and phone number of three individuals willing to be on call to address any issues regarding this section, and one of those individuals must live within the school district of the school that is the subject of the application.

5. The applicant must submit a written, signed plan that adequately addresses the handling, dispersal, and/or disposal of eggs produced by their domesticated hens, which plan must have been approved, in writing, by the school. An adequate plan will address, among other issues, the following:

(a) How and how quickly children will be required to wash their hands after they have touched the eggs; and

(b) The cleansing of eggs and the arrangements for their refrigeration.

6. The maximum number of domesticated hens allowed under this subsection is twenty.

O. Specific provisions for permits for non-commercial community garden property located both within the Gallatin Pike improvement specific plan (SP) zoning district and the East Bank redevelopment district.

1. Adequate nearby access to hand washing facilities, which include hot and cold water, single service paper towels, and hand soap, shall be provided.

2. Adequate access to electricity for the enclosure shall be provided in order to provide adequate temperature control.

3. The applicant must provide the department with the residential address and phone number of three individuals willing to be on call to address any issues regarding this section.

4. The maximum number of domesticated hens allowed under this subsection is six.

5. The applicant must submit a written plan that adequately addresses the handling, dispersal, and/or disposal of eggs produced by their domesticated hens. Such plan shall, at a minimum, address hand washing, the cleansing of eggs, and arrangements for the refrigeration of eggs. (Ord. BL2013-629 § 1, 2014; Amdt. 1 to Ord. BL2013-379 § 3, 2013; Ord. BL2013-379 §§ 1—3, 2013; Amdts. 1, 2 to Ord. BL2012-228 § 2, 2012; Ord. BL2012-228 §§ 1, 2, 2012; Ord. BL2011-47 § 1, 2012; prior code § 8-1-1)

8.12.030 Cruelty to animals prohibited.

A. No person shall intentionally or willfully or knowingly kill, maim, torture, torment, grossly overwork or overload or cause any of the actions stated herein to be committed.

B. No person shall allow pregnant animals, nursing females, or animals less than six months old to remain outdoors during periods of inclement weather unless such animal is accompanied by a custodian, keeper or handler. For purposes of this subsection, inclement weather conditions shall mean freezing temperatures, a heat index of ninety-five degrees Fahrenheit (95° F) or above as determined by the National Weather Service, thunderstorms, or tornados.

C. No person shall fail unreasonably or cause another person to fail unreasonably to provide adequate food, water, care or shelter to any animal in the person's custody or to abandon any animal in the person's custody. For the purposes of this section, "shelter" shall mean a structure or enclosure which provides an animal with protection from the elements (weather), which structure or enclosure must have a roof, floor and three sides, and be of sufficient size as to allow each animal to stand up, lie down and turn around in a natural position.

D. Pet tethering. For purposes of this subsection, "tether" means a cable, cord, or similar device used to attach an animal to a stationary device, but does not include chains. No person shall allow any animal to remain confined in such a manner as to unreasonably restrict the animal's ability to move. No person shall allow any dog to remain tethered unless all of the following conditions are satisfied:

1. The tether is not unreasonably heavy in proportion to the weight of the animal.

2. A swivel is located at both ends of the tether and the tether is free of tangles.

3. The collar or harness on the animal to which the swivel is attached is properly fitted and is a collar or harness that is commonly recognized as a pet collar or harness (choke and pinch collars are not permitted).

4. The tether is not less than fifteen feet in length.

5. Chains shall be prohibited for use as a tethering device.

6. The animal is not outside during a period of extreme weather, including without limitation a heat index of ninety-five degrees Fahrenheit (95° F) or above as determined by the National Weather Service, freezing temperatures, thunderstorms, or tornados.

7. The animal has access to water, shelter, and dry ground at all times, and has access to adequate food.

8. The animal is at least six months of age and has a current rabies vaccination.

9. The animal is not sick, injured, or in heat (estrus).

10. Pulley, running line, or trolley systems are at least fifteen feet in length and are not less than six feet above the ground.

11. If there are multiple animals, each animal must be tethered separately.

12. The tethering device shall allow the tethered dog to lie down comfortably at all positions of tether.

E. No person shall administer any poisonous or noxious substance to any animal or expose any such substance with intent that the same shall be taken by an animal, whether such animal be the property of himself or another, except when the animals exposed or administered such substances are rodents, fowl or other animals which pose a significant health hazard to the public.

F. Any police officer or any employee of the metropolitan government authorized to enforce the provisions of Chapter 8.04 and 8.08 of the Metropolitan Code of Laws may lawfully interfere to prevent the perpetration of any act of cruelty as defined herein upon any animal in his presence. No person shall interfere with or obstruct any such officer or employee in the discharge of his duty.

G. Upon conviction for animal cruelty, the court may order that the person do any or all of the following:

1. Be precluded from owning, harboring, or having custody or control of companion animals for a period of time that the court deems reasonable.

2. Participate in available animal cruelty prevention program(s) and/or educational program(s) operated or approved by the metro animal control division of the metro public health department.

3. Forfeit to metro animal control animals that are the basis of conviction.

4. Sterilize the companion animals, with sterilization being mandatory upon a second violation.

5. Pay appropriate fees and fines.

H. Penalties:

1. Upon the first conviction for violating [Section] 8.12.030D, in addition to any or all of the actions set forth in [Section] 8.12.030G, the individual shall be required to comply with [Section] 8.12.030D.

2. Upon the second conviction for violating [Section] 8.12.030D, in addition to any or all of the actions set forth in [Section] 8.12.030G, the individual shall be required to install a running cable line or trolley system of restraint. Such running cable line or trolley system shall comply with all of the requirements in [Section] 8.12.030D, as well as be at least ten feet in length and mounted at least four feet and no more than seven feet above ground level.

I. Any fees required to be paid for animal cruelty prevention programs or educational programs organized and taught by metro public health department staff shall be directed to the operating budget of the metro animal control division of the metro public health department and shall not be directed into the general fund for the metropolitan government. (Amdt. 1 to Ord. BL2017-585 § 1, 2017; Ord. BL2017-585 § 1, 2017; Amdt. 1 to Ord. BL2015-1008 § 1, 2015; Ord. BL2015-1008 § 1, 2015; Ord. BL2009-418 § 1, 2009; Amdt. 1 to Ord. BL2006-1208 § 2, 2006; Ord. BL2006-1208 §§ 1—4, 2006; Amdt. 1 and 2 with Ord. 2001-843 § 1, 2001; Ord. 99-1776 § 2 (part), 1999)

8.12.040 Animal baiting or fighting prohibited.

A. No person shall own, possess, keep, use or train any bull, bear, cock, dog or other animal for the purpose of fighting, baiting or injuring another such animal for amusement, sport or gain.

B. No person shall knowingly cause or permit on any premises under the person's charge or control, any act prohibited in subsection A of this section. (Ord. 99-1776 § 2 (part), 1999)

8.12.050 Inhumane transportation of animals.

A. No person shall carry, or cause to be carried in or upon any vehicle or other conveyance, any creature in a cruel or inhumane manner.

B. Whenever any person in violation of subsection A of this section is taken into custody by an officer, the officer may take charge of such vehicle or other conveyance and its contents, and deposit the same in some safe place of custody. Any necessary expense incurred for taking charge of and keeping and sustaining the vehicle or other conveyance and its contents shall be paid before the vehicle or other conveyance can be recovered. (Ord. 99-1776 § 2 (part), 1999)

8.12.060 Impoundment.

Any animal that is found to be treated in violation of Sections 8.12.030, 8.12.040, 8.12.050, or 8.12.080 may be impounded by any police officer or employee of the metropolitan government authorized to enforce the provisions of Chapters 8.04 and 8.08 of the Metropolitan Code of Laws for the protection of the animal. Any animal so impounded shall be handled in accordance with the procedures of and may be disposed of in the same manner provided in Section 8.04.140 of the Metropolitan Code of Laws. (Ord. BL2005-859 § 2, 2005; Amdt. 1 with Ord. 99-1776 § 2 (part), 1999)

8.12.070 Authority for chemical capture.

Animal control officers employed by the division of metropolitan animal control services may utilize equipment necessary in the chemical capture of animals that cannot be subdued by other means provided that such officers have successfully completed a minimum of eight hours of training approved by the National Animal Control Association or similar agency. For the purpose of this section, the phrase "chemical capture" means the impoundment of any animal using a tranquilizing drug in a humane manner, which renders the animal temporarily immobile. (Ord. 2001-843 § 2, 2001)

8.12.080 Companion animal hoarding.

A. For the purposes of this section, the following words and phrases shall have the meanings ascribed to them by this section:

"Adequate care" shall include but not be limited to medical treatment for illness, injury, disease, excessive parasitism, or any malformations.

"Adequate food" means food that is not spoiled or contaminated and is of sufficient quantity and quality to meet the normal daily requirements for the condition and size of the animal and the environment in which it is kept. An animal shall be fed or have food available at

least once each day, unless a licensed veterinarian instructs otherwise, or withholding is in accordance with accepted agricultural or veterinarian practices.

"Adequate shelter" means a structure or enclosure which provides an animal with protection from the elements (weather), which structure or enclosure must have a roof, floor and three sides, and be of sufficient size as to allow each animal to stand up, lie down and turn around in a natural position.

"Adequate water" means fresh, potable water provided at suitable intervals for the species, and which, in no event, shall exceed twenty-four hours at any interval. The animal must have access to the water.

"Companion animal" means domesticated animals kept in or near the household for the primary purpose of companionship for member(s) the household and/or companionship for other such animals. This includes dogs, cats, rabbits, guinea pigs, hamsters, rats, mice, ferrets, birds, reptiles, amphibians, invertebrates and species that a reasonable person would consider to be a pet. Any animal defined as "wildlife" by MCL 8.16.010 shall not be considered a companion animal for the purposes of this section. The keeping of fowl, swine, cattle, cows, sheep, horses, mules or goats shall not be governed by this section but shall be governed by other applicable sections of this Code.

"Person" means any individual, firm, partnership or corporation, or authorized agent or representative of a person, partnership or corporation.

B. No person may possess, lodge, or maintain over five companion animals if such a person displays a general disregard for the conditions under which the animals are living, including, but not limited to, failing to provide all of the following to all of the companion animals in his care: adequate food, water, shelter, and care.

C. A person in violation of this section is guilty of a misdemeanor. Upon conviction for companion animal hoarding, the court may order that the person do any or all of the following:

1. Be precluded from owning, harboring, or having custody or control of companion animals for a period of time that the court deems reasonable.

2. Participate in available animal cruelty prevention program(s) or educational program(s), or both.

3. Undergo a behavioral health evaluation and comply with any recommendations resulting from the evaluation.

4. Forfeit to Metro Animal Control animals that are the basis of conviction.

5. Sterilize the companion animals, with sterilization being mandatory upon a second violation.

6. Pay appropriate fees and fines. (Ord. BL2005-859 § 1, 2005)

8.12.090 Animal offender school.

A. There shall be established, under the supervision of the animal control division of the department of health, an animal offender school for the purpose of providing education about proper animal care and cruelty prevention to persons found by a court of competent jurisdiction to be in violation of any provision of this title.

B. The court shall have the discretion to order any person found to be in violation of any provision of this Title to attend such animal offender school in addition to, or in lieu of, any fine, fee or other punishment prescribed by this title.

C. The animal control division of the department of health shall maintain records showing the names of attendees, dates of attendance, and whether such attendees satisfactorily completed the course.

D. The cost of attending such animal offender school shall be at the sole expense of the person ordered by the court to attend. The animal control division of the department of health is authorized to charge of fee of up to sixty-five dollars for attending the animal offender school. All fees collected for the animal offender school shall be deposited in the general fund of the general services district to assist in covering the expenditures for instructor salaries, equipment and materials. (Ord. BL2009-460 § 1, 2009)

8.12.100 Outdoor sale or gifting of animals prohibited.

A. It is unlawful for any person to display in any outdoor public place within the area of the metropolitan government dogs, cats, or other domestic animals for the purpose of giving the animal(s) away or selling the animal(s). For purposes of this ordinance, "outdoor public place" includes streets, roads, highways, thoroughfares, intersections, sidewalks, public rights-of-way, and parking lots (whether publicly or privately-owned).

B. The provisions of this section shall not apply to:

1. The animal control division of the department of health;

2. Licensed dealers under Tenn. Code Ann. § 44-17-101, et seq., at their place of business; or

3. Any legally recognized non-profit entity organized pursuant to section 501(c) of the IRS Code whose primary purpose is the care and adoption of animals.

C. Nothing in this section shall prevent a person from selling or giving away dogs, cats, or other domestic animals owned by that person from their own residence or place of business. (Ord. BL2009-606 § 1, 2010)

8.12.110 Pen enclosures for dogs.

A. For purposes of this section, "outdoor pen enclosure" means an enclosure (excluding fenced-in yards) used as the primary living area, or an area used regularly for an animal or animals to eat, sleep, drink, and eliminate. The configuration of the enclosure must be such that the dog can easily move about.

B. Outdoor pen enclosures shall meet the following minimum requirements:

1. Minimum size. Outdoor pen enclosures shall meet the square footage requirements set forth in Table 8.12.110 provided below based upon the number and size of dogs in the enclosure, provided that puppies less than three months in age shall not be counted for purposes of determining the minimum size of the enclosure.

2. The required amount of unoccupied space does not include that required for 'adequate shelter' as defined in this chapter, but shall include adequate shade for all dogs in enclosure.

3. The pen or secure enclosure shall be constructed with chain link or other similar fencing material, as defined in Section 16.24.330 of the Metropolitan Code, with all sides enclosed.

4. The floors of pens shall be constructed of such material or otherwise arranged so that there is no accumulation of standing water.

5. All pens shall be kept clean and sanitary and shall not be kept in a manner that creates a nuisance for the neighbors or neighborhood; nor filthy or dirty confinement conditions, including but not limited to exposure to excessive animal waste, garbage, dirty water, noxious odors, dangerous objects that could injure or kill the dog upon contact, or other circumstances that could cause harm to the dog's health.

6. The pen shall be sufficient height as to prevent the dog from escaping and, if a top is used, it must be at least twelve inches above the head of the tallest dog.

Table 8.12.110

MINIMUM SIZE FOR OUTDOOR PEN ENCLOSURES **Minimum square footage of unoccupied area (excluding doghouse) based on largest dog**				
*Number of Dogs**	*Up to 25 Pounds*	*25 to 50 Pounds*	*Over 50 Pounds*	*Over 100 Pounds*
1	20	50	80	100
2	50	80	100	150
3	80	100	150	200
4	100	150	200	250

*Add 50 square feet for each additional dog over and above four. (Ord. BL2014-841 § 1, 2014)

Chapter 8.16

WILDLIFE

Sections:

8.16.010	**Definitions.**
8.16.020	**Keeping wildlife—Prohibited when.**
8.16.030	**Exceptions.**
8.16.040	**Keeping wildlife—Certificate required—Fee.**
8.16.050	**Certificate—Council approval.**
8.16.060	**Certificate—Renewal.**

8.16.010 Definitions.

A. For the purpose of this chapter, the following terms shall have the following meanings:

"Possess or possessing" means possession, keeping, harboring or permitting to remain.

"Wildlife" means any Class I or Class IV wildlife as classified by Tennessee Code Annotated, Section 70-4-403, and shall also mean pumas, cheetahs, cougars and wolves.

B. Except as provided above, all other terms shall have the meaning as provided in Section 8.04.010 of this code.

C. Provided, however, the provisions of this chapter shall not be applicable for any premises within the area of the metropolitan government that contain three or more acres. (Prior code § 8-1-18)

8.16.020 Keeping wildlife—Prohibited when.

It is unlawful for any person to possess wildlife on or about their premises within the area of the metropolitan government except as provided in this chapter. (Prior code § 8-1-19)

8.16.030 Exceptions.

The provisions of this chapter shall not prohibit the possession of wildlife by zoos, transient circus acts, schools, colleges, educational and research institutions and animal rehabilitation centers; and no certificate shall be required. (Prior code § 8-1-22)

8.16.040 Keeping wildlife—Certificate required—Fee.

Any person possessing wildlife on or about any premises within the area of the metropolitan government shall make application to the director of the board of health. Such certificate shall contain such information as may be required by the director. A fee in the amount of fifty dollars shall be paid to the board of health with said application. (Prior code § 8-1-20)

8.16.050 Certificate—Council approval.

Upon receipt of an application to possess wildlife within the area of the metropolitan government, the director prior to issuing such certificate permitting same, shall file a resolution seeking approval of the issuance of such certificate with the metropolitan county council. In the event no action is taken upon said resolution within sixty days, the director may issue the certificate. In the event the resolution does not receive a favorable vote of the majority of the entire membership of the metropolitan council, said certificate shall be denied. (Prior code § 8-1-21)

8.16.060 Certificate—Renewal.

A certificate issued under the provisions of this chapter shall be valid for a period of one year from the date of issuance and may be renewed on annual basis upon the payment of a twenty-five dollar renewal fee. Unless said wildlife is moved to a new location, council approval of said renewal shall not be required. (Prior code § 8-1-23)

Chapter 8.20

ANIMAL CONTROL REGULATIONS*

Sections:

8.20.010 License tag—Removal prohibited.
8.20.020 Treatment for persons bitten by rabid dog recommended—Expenses paid when.
8.20.030 Animals exposed to rabies—Confinement required.
8.20.040 Care of confined animals.
8.20.050 Running at large of certain animals prohibited.
8.20.060 Fowl at large prohibited—Impoundment.
8.20.070 Impounded fowl—Redemption—Sale.
8.20.080 Impounded animals—Redemption—Sale.
8.20.090 Moneys collected—Poundmaster's duties.
8.20.100 Keeping livestock—Permit required—Regulation by department of health.
8.20.110 Cattle quarters—Health regulations.
8.20.120 Sale of livestock on streets.
8.20.130 Keeping of hogs prohibited.
8.20.170 Killing birds and squirrels prohibited.

8.20.010 License tag—Removal prohibited.

No person shall remove the license tag from the neck of any licensed dog. (Prior code § 8-2-1)

8.20.020 Treatment for persons bitten by rabid dog recommended—Expenses paid when.

When it is reported that a rabid dog has bitten one or more person, it shall be the duty of the chief medical director to investigate the report and recommend treatment for those who, in his opinion, need it. As far as funds will permit, free treatment shall be given to those needing it after the chief medical director has satisfied himself that the person is unable to bear the expense himself. (Prior code § 8-2-2)

*__Editor's note—__Ord. BL2017-586, § 1, adopted April 4, 2017, renamed Ch. 8.20 to read as herein set out. Formerly, said chapter was entitled "Animal Control Regulations—Urban Services District."

8.20.030 Animals exposed to rabies—Confinement required.

It shall be the duty of the chief medical director to find those dogs or other animals known or suspected of having been in close contact or a fight with a rabid dog, and unless the owners of these dogs or other animals keep them confined for a period of six months and, in cases where a dog or other animal is known to have been bitten by a mad dog, have protective inoculation given, then the owner shall turn the dog or other animal over to the department of health so that it may be destroyed. (Prior code § 8-2-3)

8.20.040 Care of confined animals.

Any person who shall impound or cause to be impounded, in any pound or other place, any creature, shall supply to the same during such confinement a sufficient quantity of good, wholesome food and water. Such persons shall not allow any creature that is pregnant, a nursing female, or less than six months old to remain outdoors during periods of inclement weather conditions as listed in Section 8.12.030.B. (Amdt. 1 to Ord. BL2017-585 § 2, 2017; Ord. BL2017-585 § 2, 2017; prior code § 8-2-6)

8.20.050 Running at large of certain animals prohibited.

No person shall permit any dangerous or mischievous animal to run at large. No cattle, sheep, horse, goat, mule or hog shall be allowed by any owner or by any person having charge of the same to go at large in any street or public place. (Ord. BL2017-586 § 2, 2017; Ord. BL2016-528 § 1, 2017; prior code § 8-2-9)

8.20.060 Fowl at large prohibited—Impoundment.

A. It is unlawful for the owner or the person in charge of any chickens, ducks, geese, turkeys or other domestic fowl to permit them to run at large in any street, alley, public square, public place or unenclosed lot.

B. The department of health shall cause any fowl so running at large to be taken up and put in the metropolitan pound. It shall be the duty of the department of health and poundmaster and their assistants to take up such fowl and transport the same to the pound. (Ord. BL2017-586 § 3, 2017; prior code § 8-2-14)

8.20.070 Impounded fowl—Redemption—Sale.

A. If within three days from the day any fowl are put into the pound, the owner or person in charge thereof calls for the same, such fowl shall be delivered to him upon payment of twenty-five cents for each fowl so impounded.

B. If no one claims such fowl within the period of three days, the department of health shall cause a notice to be inserted in some newspaper published in the metropolitan government area for one publication, briefly describing the fowl, and giving notice that unless redeemed, the same will be sold at public sale. Separate notices shall not be required for each fowl, but any number of same, whether taken up at the same time and place or otherwise, may be advertised in the same notice. Unless such fowl so advertised are redeemed by the payment of the pound fees abovementioned and an additional charge of ten cents per head for each day after the expiration of the first three days, they shall be sold on the day named in the notice, which day of sale shall not be less than two days after publication. Such sale shall be at public auction, to the highest bidder for cash, of which sale a record containing a brief description of the fowl sold, the price paid and the name of the purchaser shall be kept at the office of the department of health. The proceeds of such sale shall be received by the department of health and paid over each day to the metropolitan collections officer, who shall hold such funds subject to the order of the owners of the fowl, after retaining enough to pay all fees, costs and charges as herein provided, including costs of advertisement. (Prior code § 8-2-15)

8.20.080 Impounded animals—Redemption—Sale.

A. If, within three days from the day an animal is impounded, the owner or person in charge thereof calls for the same, such animal shall be delivered to him upon the payment of three dollars for each head of swine, goats or sheep, or four dollars and fifty cents for each head of cattle, horses, mules or cows so impounded.

B. If no one claims the same within the period of three days, the department of health shall cause a notice to be inserted in some daily newspaper in the metropolitan government area for three successive days, briefly describing the animal and giving notice that unless redeemed the same will be sold at public sale. All animals not redeemed by the payment of the pound fees aforesaid and one dollar and fifty cents per head for each day after the expiration of the first three days shall be sold on the day named in the notice at public auction to the highest bidder for cash, of which sale a record containing a brief description of the property sold, the price paid and the name of the purchaser shall be kept in the office of the department of health. The proceeds of such sale shall be paid over each day to the metropolitan collections officer, who shall hold such funds subject to the order of the owner of the animal, after retaining enough to pay all fees, costs and charges, including the cost of advertising as hereinbefore provided. (Prior code § 8-2-17)

8.20.090 Moneys collected—Poundmaster's duties.

The poundmaster shall keep in the office a proper book, showing the time, number and kind of animals brought into the pound and by whom the same are redeemed, or what disposition shall have been made of same, also the amount paid and cost of feed, etc., furnished for each animal impounded. He shall pay once every week, should he have any funds on hand, the balance to the metropolitan collection officer, taking a receipt for the same, which he shall safely file in his office. (Prior code § 8-2-16)

8.20.100 Keeping livestock—Permit required—Regulation by department of health.

A. No person shall keep any cattle, cows, sheep, horses, mules or goats in the urban services district within one thousand feet of any residence or place of business, without a permit to do so from the chief medical director. The chief medical director shall issue permits only when the keeping of such animals in the yards or buildings and under the circumstances set forth in the applications for the permit shall not injuriously affect the public health.

B. It is unlawful for any owner, agent or occupant of any stable, stall or apartment in which any horse, cattle or swine or any other animal shall be kept, or in any place in which manure or any liquid discharge of such animals shall collect or accumulate, to fail to comply with the notice of the department of health to cleanse, remove or repair such stable, stall or apartment or to keep the same in a sanitary condition. (Prior code § 8-2-11)

8.20.110 Cattle quarters—Health regulations.

No cattle shall be kept within the urban services district in any place of which the water, ventilation and food are not sufficient and wholesome for the preservation of their health, safe condition and wholesomeness as food. (Prior code § 8-1-12)

8.20.120 Sale of livestock on streets.

It is unlawful for any person to sell, offer to sell, buy or offer to buy, upon any street, lane or alley, any livestock of any description whatever; provided, that this section does not include sales or purchases or offers to sell or purchase livestock not present on the streets, lanes or alleys when the sales or purchases or offers of same are made. (Ord. BL2017-586 § 6, 2017; prior code § 8-2-13)

8.20.130 Keeping of hogs prohibited.

The keeping of hogs by any person within the urban services district is declared to be a nuisance and unlawful; provided, that nothing in this section shall be construed to prevent a duly licensed stockyard, abattoir or packing house from temporarily keeping hogs for the purpose of slaughtering, packing or shipping in interstate or intrastate commerce. (Prior code § 8-2-10)

8.20.170 Killing birds and squirrels prohibited.

It is unlawful for any person to kill or attempt to kill any bird, game or nongame (except English sparrows), squirrels or any other animal, in any of the public parks (including the Custom House Park and the Capitol Hill Park) or in any of the cemeteries, public or private. (Ord. BL2017-586 § 8, 2017; prior code § 8-2-8)

Chapter 8.24

ANIMAL CONTROL REGULATIONS—SECOND CIVIL DISTRICT

Sections:

8.24.010 **Keeping hogs—Permit required when.**

8.24.010 Keeping hogs—Permit required when.

In the second civil district, no person shall keep any hogs within one thousand feet of any residence or place of business, without a permit to do so from the chief medical director. (Prior code § 8-3-1)

Chapter 8.30

RETAIL SALE OF DOGS AND CATS AT PET STORES

Sections:

8.30.010	**Definitions.**
8.30.020	**Restrictions on the sale of dogs and cats.**
8.30.030	**Violations.**
8.30.040	**Enforcement.**

8.30.010 Definitions.

For the purposes of this chapter, the following terms have the following meanings:

"Animal care facility" means an animal control center or animal shelter, maintained by or under contract with any state, county, or municipality, whose mission or practice is, in whole, or significant part, protecting the welfare of animals and the placement of animals in permanent homes or with animal rescue organizations.

"Animal rescue organization" means any not-for-profit organization which has tax-exempt status under Section 501(c)(3) of the United States Internal Revenue Code, whose mission and practice is, in whole or in significant part, the rescue of animals and the placement of those animals in permanent homes. This term does not include any entity which is, or is affiliated with, or is housed on the premises of, a breeder or broker, obtains dogs from a breeder or broker in exchange for payment or compensation, or resells dogs obtained from a breeder or broker and provides payment or compensation to such breeder or broker.

"Breeder" means a person who maintains dogs or cats for the purpose of breeding and selling their offspring.

"Broker" means a person who transfers dogs or cats for resale by another.

"Cat" means all members of the cat family, including both male and female.

"Dog" means all members of the dog family, including both male and female.

"Offer for sale" means to sell, offer for sale or adoption, barter, auction, give away or otherwise transfer a dog or cat.

"Person" means any individual, partnership, corporation or association or any other legal entity, or any agent or employee thereof.

"Pet store" means a retail establishment where dogs or cats are offered for sale as pet animals to the general public at retail; provided that an animal care facility or animal rescue organization, as defined, shall not be considered "Pet Stores." (Ord. BL2018-1159 § 1, 2018)

8.30.020 Restrictions on the sale of dogs and cats.

A. A pet store may offer for sale only those dogs and cats that the pet store has obtained from or displays in cooperation with:

1. An animal care facility, as defined in this chapter; or

2. An animal rescue organization, as defined in this chapter.

B. A pet store shall not offer for sale a dog or cat that is younger than eight weeks old.

C. Each pet store shall maintain records sufficient to document the source of each dog or cat the pet store acquires, for at least one year following the date of acquisition. Such records shall be made available, immediately upon request, to any animal control officer, health officer, or any law enforcement agency.

D. Each pet store offering dogs or cats for sale shall post, in a conspicuous location on the cage or enclosure of each animal, a sign listing the name of the animal care facility or animal rescue organization from which each dog or cat in the cage or enclosure was acquired. (Ord. BL2018-1159 § 1, 2018)

8.30.030 Violations.

Any person found in violation of any provision of this chapter shall be subject to a civil penalty of fifty dollars per day, per violation. Each animal offered for sale in violation of any provision of this chapter shall be deemed a separate offense. (Ord. BL2018-1159 § 1, 2018)

8.30.040 Enforcement.

The director of the department of health and the director of the department of codes administration shall have concurrent jurisdiction to enforce all sections of this Chapter 8.30. (Ord. BL2024-552 § 1, 2024)

Title 9

NOISE AND AMPLIFIED SOUND*

Chapters:

9.10	**General Provisions**
9.20	**Excessive Noise**
9.30	**Construction Noise**

*__Editor's note—__Ord. BL2020-196, § 1, adopted May 5, 2020, repealed the former Title 9, §§ 9.10.010, 9.10.020, 9.20.010—9.20.060, 9.30.010—9.30.040, and enacted a new Title 9 as set out herein. The former Title 9 pertained to similar subject matter and derived from Ord. BL2019-1631 § 2, 2019.

Chapter 9.10

GENERAL PROVISIONS

Sections:

9.10.010	**Definitions.**
9.10.020	**Noise sound pressure levels—Measurement.**
9.10.030	**Exemptions.**

9.10.010 Definitions.

The following definitions shall apply to this title:

"A-weighted sound pressure level" means the sound pressure level as measured with a sound level meter using the "A" Weighting Network. The standard notation is Db(A).

"Construction equipment" means any equipment or devices, such as, but not limited to, pile drivers, power shovels, jackhammers, derricks, hoist tractors, dump trucks, loaders, rollers, concrete-hauling motor vehicles, pavement breakers, backhoe, clam shells, bulldozers, crawler-tractors, rotary drills and augers, cranes, ditchers, trenchers, scrapers, graders, wagons, pumps, compressors and pneumatic power equipment or other mechanical apparatus operated by fuel or electric power in the construction, repair or demolition of any building, structure, land, driveway or appurtenance thereto.

"Decibel" means a logarithmic unit of measure often used in measuring magnitudes of sound. The symbol is Db.

"Emergency work" means work made necessary to restore property to a safe condition following a public calamity or work to restore public utilities or work required to protect persons or property from an imminent exposure to danger.

"Noise" means sound that is measured as the sound pressure level in decibels (Db).

"Person" means any person, firm, group, association, organization, partnership, business, trust, corporation, company, contractor, supplier, installer, user or owner.

"Plainly audible" means any sound which clearly can be heard by unimpaired auditory senses; however, words or phrases need not be discernible and said sound shall include bass reverberation.

"Premises" means any building, structure, land, utility or portion thereof, including all appurtenances, and shall include yards, lots, courts, inner yards, common hallways in multiple-family dwellings, common areas for one or more multiple-family dwellings, and real properties without buildings or improvements, owned or controlled by a person.

"Property line" means an imaginary line exterior to any enclosed structure, at the ground surface, and its vertical extension, which separates the real property or rental unit owned or leased by one person from that owned or leased by another person.

"Public right-of-way" means any street, avenue, boulevard, highway, alley or public space which is owned or controlled by a governmental entity.

"Sound" means oscillation in pressure, stress, particle displacement and particle velocity which induce auditory sensation.

"Sound amplification equipment" means a radio, tape player, compact disc player, digital audio player, television, electronic audio equipment, musical instrument, sound amplifier, or other mechanical or electronic sound-making device that produces, reproduces or amplifies sound.

"Sound level meter" means an apparatus or instrument including a microphone, amplifier, attenuator, output meter and frequency weighting networks for the measurement of sound levels. The sound level meter shall be a design and have the characteristics of a type 2 or better instrument as established by the American National Standards Institute, publication S1.4-1971, entitled "Specification for Sound Level Meters."

"Sound pressure level" means twenty times the logarithm to the base ten of the ratio of the pressure of a sound to the reference pressure of twenty micronewtons per square meter (20 × 10-6 newtons/meter2) and is expressed in decibels (Db). (Ord. BL2020-196 § 1, 2020)

9.10.020 Noise sound pressure levels—Measurement.

For the purpose of determining noise sound pressure levels as set forth in this title, the following test procedures and measurements are applicable:

A. The instrument for determining noise sound pressure levels shall be with a sound level meter of standard design as defined in this section. Sound pressure level measurements shall be made with the "A" Weighting Network.

B. Noise sound pressure levels shall be measured from a point as close as possible to the outside walls of any residential structure located on the property affected by the noise at a height of four feet above the immediate surrounding surface. (Ord. BL2020-196 § 1, 2020)

9.10.030 Exemptions.

The provisions of this Title shall not apply to airport uses. (Ord. BL2020-196 § 1, 2020)

Chapter 9.20

EXCESSIVE NOISE

Sections:

9.20.010	**Sound amplification equipment.**
9.20.020	**Motor vehicle noise.**
9.20.030	**Outdoor entertainment and mass gatherings.**
9.20.040	**Commercial noise.**
9.20.050	**Excessive noise on a pedal carriage.**
9.20.060	**Enforcement.**

9.20.010 Sound amplification equipment.

A. Except for properties lying within an area zoned DTC district and properties zoned CF district that are contiguous to those zoned DTC district, it shall be unlawful for any person to:

1. Operate or allow the operation of any sound amplification equipment so as to create sounds that are plainly audible from the boundary line of the nearest residentially occupied property. For multifamily structures, including apartments, condominiums, or other residential arrangements where boundary lines can not readily be determined, it shall be unlawful to operate or allow the operation of any sound amplification equipment so as to create sounds that are plainly audible from any point within the interior of another residential unit in the same complex or within the boundary line of the nearest residentially occupied property. This subsection shall not apply to a special event, mass gathering or other permitted activity by the metropolitan government or its boards or commissions. This subsection shall not apply to educational institutions during typical on-campus activities, including athletic events, musical performances, and student festivals between the hours of 7:00 a.m. and 11:00 p.m. Further, the provisions of this section shall not apply to entertainment facilities constructed to provide outdoor entertainment owned by metropolitan government or its agencies and parks under the control of the board of parks and recreation.

2. Operate or allow the operation of any sound amplification equipment for advertising purposes or otherwise to attract customers so as to cast sounds which are unreasonably loud and disturbing or which are plainly audible at or on the boundary of the nearest public right-of-way or park.

3. Operate or allow the operation for personal use of any sound amplification equipment on the public right-of-way, including streets or sidewalks, or in parks under control of the board of parks and recreation, so as to produce sounds that are plainly audible fifty feet or more from any electromechanical speaker.

B. The provisions of this subsection B. shall be applicable for properties lying within an area zoned DTC district and properties zoned CF district that are contiguous to those zoned DTC district:

1. Except as provided in subsection B.5. of this section, it shall be unlawful to operate or allow the operation of any amplification device mounted to the exterior of a building or structure, or to operate such device outside of the premises.

2. In all cases, interior speakers within ten feet of an open exterior door or window shall not be oriented toward any such open exterior door or window. It shall be unlawful for interior speakers of an establishment during business operating hours regardless of speaker orientation to produce sounds registering more than 85 decibels (A weighted) ("Db(A)"), as measured at street level fifty linear feet from the outside wall of the structure within which the noise is produced. Other than during business operating hours, it shall be unlawful for any establishment to operate or allow the operation of interior speakers producing sounds registering more than 70 Db(A) at or on the boundary of the nearest public right-of-way or park. For purposes of this subsection, "business operating hours" means the hours during which an establishment is open to customers or patrons, or a musical act is tuning their instruments for the purposes of performing during business operating hours.

3. All prerecorded music shall be limited to the 85 Db(A), regardless of the source including, but not limited to: vinyl records, compact disks, digital video disks, digital audio players, hard drives, solid state memory, tape drives, radio sets or television sets. Such sound measurement shall be taken at street level fifty linear feet from the outside wall of the structure within which the noise is produced. Notwithstanding the foregoing, live music is expressly exempt from the 85 Db(A) limitation. Live music shall mean that musicians, instruments and singers will not be prerecorded.

4. If a commercial operation functions primarily as a dining establishment with outside seating, that establishment shall be exempt from the speaker prohibition but must limit the sound output to 85 Db(A), as measured at street level fifty linear feet from the property line of the dining establishment from which the noise is produced.

5. The following shall be exempt from the provisions of subsection B.1. above:

a. Special events, mass gatherings, or other permitted activities by the State of Tennessee or the metropolitan government or any of its boards or commissions;

b. Entertainment facilities constructed to provide outdoor entertainment owned by the State of Tennessee, the metropolitan government (or its agencies), or the parks under the control of the State of Tennessee or the metropolitan board of parks and recreation;

c. Churches or facilities used for religious worship.

6. The director of mayor's office of nightlife shall convene an advisory committee to contemplate the impact of sustained exposure to loud music on local musicians, and make recommendations that may be implemented through a pilot project. (Ord. BL2023-2106 §§ 1, 2, 2023; Ord. BL2020-196 § 1, 2020)

9.20.020 Motor vehicle noise.

A. It shall be unlawful for any person to:

1. Operate any motor vehicle propelled by an internal combustion engine that is not equipped with a muffler in good working order and in constant operation to prevent excessive noise.

2. Operate a motor vehicle equipped with a cut-out, by-pass, or similar muffler elimination unit, or to operate a motor vehicle with devices that amplify motor noise or motor vehicle exhaust noise.

3. Operate a motor vehicle if the exhaust noise is plainly audible at a distance of two hundred feet or more from the vehicle.

4. Operate a motor vehicle if the exhaust noise is plainly audible within a structure containing a dwelling unit.

5. Operate or allow the operation of buses in a parking or staging area if noise from the engine, exhaust, or back-up alert beeper is plainly audible from the nearest exterior wall of a transient lodging establishment within the commercial attraction (CA) zoning district.

6. Prohibitions contained in this section shall not be applicable to emergency or public safety vehicles, vehicles owned and operated by the metropolitan government or any utility company, or any motor vehicle used in an authorized public activity for which a permit has been granted by the appropriate agency of the metropolitan government or is otherwise authorized by law or contract with the metropolitan government.

7. Any person violating this section shall be fined not less than fifty dollars. Each violation of this section shall be deemed a separate offense.

B. No person operating or occupying a motor vehicle, including an entertainment transportation vehicle, on any street, highway, alley, parking lot, or driveway, either public or private property, shall operate or permit the operation of any sound amplification system, including, but not limited to, any radio, tape player, compact disc player, loud speaker, or any other electrical device used for the amplification of sound from within the motor vehicle so that the sound is plainly audible at a distance of fifty or more feet from the vehicle or, in the case of a motor vehicle on private property, beyond the property line. (Amdt. 1 to Ord. BL2025-1047 § 1, 2025; Ord. BL2025-1047 § 1, 2025; Ord. BL2021-911 § 6, 2021; Ord. BL2020-196 § 1, 2020)

9.20.030 Outdoor entertainment and mass gatherings.

A. Except for properties lying within an area zoned DTC district and properties zoned CF district that are contiguous to those zoned DTC district, no person or persons owning, operating, or having the care, custody, or control of any facility located within fifty feet of a residence and/or of a natural conservation area shall permit to be operated any musical instrument or other entertainment device using amplification unless such music or other entertainment is provided within a totally enclosed structure. Such music or other entertainment may be provided outside of a structure only between the hours of 7:00 a.m. and 11:00 p.m., except when exempted under provisions of the code as a special event, mass gathering or other permitted activity by metropolitan government or its boards or commissions. The provisions of this section shall not apply to entertainment facilities constructed to provide outdoor entertainment owned by metropolitan government or its agencies and parks under the control of the board of parks and recreation.

B. Outdoor entertainment events within the downtown area.

1. No person shall operate an outdoor music and/or entertainment event that produces amplified sound which registers more than 85 Db(A), as measured from any point within the boundary line of the nearest residentially occupied property at the street level.

2. The provisions of this subsection shall only apply to:

a. properties lying with an area zoned DTC district and properties zoned CF district that are contiguous to those zoned DTC district;

b. properties lying within an area bounded by properties fronting Music Square West and 17th Avenue South from Division Street to Edgehill Avenue;

c. properties along the north portion of Edgehill Avenue between 17th Avenue South and 16th Avenue South;

d. properties fronting 16th Avenue South and Music Square East between Edgehill Avenue and Division Street;

e. properties lying within an area fronting on the east side of 21st Avenue South from Scarritt Place to Edgehill Avenue; and

f. the properties fronting on the north side Edgehill Avenue to 17th Avenue South.

C. The sound level measured at the boundaries of the mass gathering site shall be no more than 85 Db(A). (Ord. BL2020-196 § 1, 2020)

9.20.040 Commercial noise.

A. No person or persons owning, operating, or having the care, custody, or control of any business or commercial facility shall be permitted to operate any equipment, vehicles, or heavy machinery incident to performing business or commercial functions, or engage in any other business or commercial activity between the hours of 9:00 p.m. and 6:00 a.m. which would emit, cause to be emitted, or permit the emission of any noise in excess of 70 Db(A) as measured from a point as close as possible to the outside walls of any residential structure located within a residential zoning district affected by the noise at a height of four feet above the immediate surrounding surface.

B. For business or commercial facilities located within the DTC and CF zoning districts, no person or persons owning, operating, or having the care, custody, or control of any business or commercial facility shall be permitted to operate any equipment, vehicles, or heavy machinery incident to performing business or commercial functions, or engage in any other business or commercial activity between the hours of 9:00 p.m. and 6:00 a.m. which would emit, cause to be emitted, or permit the emission of any noise in excess of 85 Db(A) as measured from a point as close as possible to the outside walls of any residential structure located within a residential zoning district affected by the noise at a height of four feet above the immediate surrounding surface.

C. Prohibitions contained in this section shall not be applicable to emergency or public safety vehicles, vehicles owned and operated by the metropolitan government or any utility company, for sound emitted unavoidably during job-related operation, or any motor vehicle used in an authorized public activity for which a permit has been granted by the appropriate agency of the metropolitan government. (Ord. BL2020-196 § 1, 2020)

9.20.050 Excessive noise on a pedal carriage.

No music or amplified sound shall be played, nor yelling or conversation be conducted, on a pedal carriage in such a manner that it would be plainly audible from a distance of fifty feet. (Ord. BL2020-196 § 1, 2020)

9.20.060 Enforcement.

The Metropolitan Nashville Police Department, the Nashville Department of Transportation, and the Department of Codes and Building Safety shall be responsible for the enforcement of violations of this chapter. (Ord. BL2023-2106 § 3, 2023; Ord. BL2020-196 § 1, 2020)

Chapter 9.30

CONSTRUCTION NOISE

Sections:

9.30.010	**Outdoor construction hours.**
9.30.020	**Exemptions.**
9.30.030	**Variances.**
9.30.040	**Enforcement.**

9.30.010 Outdoor construction hours.

A. Except as provided in subsection B, it is unlawful for any person to engage in the outdoor construction, repair or demolition of buildings, structures, land, driveways, or appurtenances thereto, on any parcel, excluding parcels zoned IWD, IR, and IG, between the hours of 7:00 p.m. and 7:00 a.m., except that during the months of June, July, and August, the foregoing restriction shall be between the hours of 8:00 p.m. and 6:00 a.m.

B. In the Gulch South, Gulch North, and Hope Gardens DTC subdistricts, as defined by the Downtown Code, it is unlawful for any person to engage in the outdoor construction, repair or demolition of buildings, structures, land, driveways, or appurtenances thereto on any parcel during the hours of 8:00 p.m. and 6:00 a.m. year-round. In the James Robertson, Sulphur Dell, Core, Core Historic, Upper Broadway, 2nd and Broadway, River, SoBro, Lafayette, Rutledge Hill, Rolling Mill Hill, Rutledge River DTC subdistricts and any subdistricts not mentioned here, as defined by the Downtown Code, this section shall not apply.

C. For the purposes of this section, "outdoor construction" means any construction activities occurring outside of an enclosed building. As used in subsection A, "outdoor construction" does not mean activities necessary to mitigate safety or significant traffic concerns during the stated restriction hours such as concrete activities, utility and road work, hauling and hoisting of large loads, and similar activities as determined by the director of codes administration. As used in subsection B, "outdoor construction" does not mean activities necessary to mitigate safety or significant traffic concerns during the stated restriction hours such as concrete activities, utility and road work, hauling and hoisting of large loads, delivery of construction materials, and similar activities as determined by the director of codes administration. (Ord. BL2024-180 § 1, 2024; Ord. BL2022-1164 § 1, 2022; Ord. BL2020-300 § 1, 2020; Ord. BL2020-196 § 1, 2020)

Editor's note—Ord. BL2024-180 § 2, states: This ordinance shall take effect on May 1, 2024, the welfare of the Metropolitan Government requiring it.

9.30.020 Exemptions.

The following activities shall be exempt from the requirements of Section 9.30.010:

A. Highway, bridge, road, street, dredging in navigable waters, or other public works construction activities, utility work such as water, sewer, gas, electrical, cable, telecom, fiber optic or telephone construction activities and any vehicles used to transport materials to and from such construction activities, so long as the vehicles remain within the highway, road, street or construction right-of-way or easement;

B. Emergency work;

C. Transporting and unloading of construction materials, other than blast materials, between 5:00 a.m. and 7:00 a.m. (Ord. BL2020-300 § 1, 2020; Ord. BL2020-196 § 1, 2020)

9.30.030 Variances.

A. Any person seeking to perform construction activities which would be in violation of Section 9.30.010 must, prior to engaging in activities prohibited under Section 9.30.010, make an application to the director of the department of codes administration and obtain a permit to perform such activities. Such a permit shall not be granted unless the applicant establishes the following:

1. Any outdoor construction will not interfere with normal activities conducted within the zoning district during the hours of the proposed construction activities; and

2. The applicant has obtained all other approvals and permits for said construction activities as required by the metropolitan code of laws; or

3. The overriding public interest (as opposed to the private interest of the applicant or the owner of the property upon which said construction activities shall occur) will be significantly promoted by permitting the applicant to engage in outdoor construction outside of the hours permitted in Section 9.30.010.

B. Notice of an application for a variance shall be given by the director of the department of codes administration to persons who may be adversely affected by the granting of the variance and to the district councilmember. Any person who claims to be adversely affected by such a variance, if allowed, may file a written statement with the director. Such statement shall contain sufficient factual information to support the claim.

C. Variances shall be granted by notice to the applicant containing any necessary conditions, including a time limit on the permitted activity. The variance shall not become effective until all conditions are agreed to by the applicant. Noncompliance with any condition

of the variance shall terminate it and subject the person holding it to the requirements of Section 9.30.010. (Ord. BL2022-1164 § 2, 2022; Ord. BL2020-196 § 1, 2020)

9.30.040 Enforcement.

The metropolitan department of codes administration shall be responsible for the enforcement of this chapter. (Ord. BL2020-196 § 1, 2020)

Title 10

HEALTH AND SAFETY*

Chapters:

Division I. General Regulations

10.04 Vital Statistics
10.08 Dry Warehouses for Storage of Food
10.12 Mineral, Spring and Other Drinking Water
10.16 Disease Control
10.18 Prohibition of Smoking in Metropolitan Buildings
10.19 Prohibition of Smoking in Certain Age-Restricted Venues
10.20 Waste Management
10.24 Littering
10.26 High Weeds and Debris
10.28 Control of Excessive Vegetation
10.30 Scrap Tires
10.32 Rodents, Insects and Other Pests
10.36 Housing Sanitation
10.40 Trailer Courts
10.44 Mass Gatherings
10.48 Public Swimming Pools
10.52 Quarrying and Mining Operations
10.56 Air Pollution Control
10.57 Radon Regulation in Metropolitan Government Buildings
10.60 Burglar and Fire Alarm Systems
10.64 Fire Prevention Code
10.68 Fireworks
10.70 Removal of Dead Animals

Division II. Urban Services District

10.72 Hospitals and Physicians
10.76 Reserved
10.80 Fire Protection and Firefighting Equipment

Division III. Neighborhood Revitalization

10.86 Vacant Property Review Commission
10.90 Incomplete Infrastructure

***Editor's note—**For provisions on the health department, see Chapter 2.36 of this Code.

Division I. General Regulations

Chapter 10.04

VITAL STATISTICS

Sections:

10.04.010	**Definitions.**
10.04.020	**Certificate of birth—Filing required.**
10.04.030	**Certificate of death or stillbirth—Filing required.**
10.04.040	**Certificates deemed in compliance when.**
10.04.050	**Board of health—Authority.**
10.04.060	**Certified copies of statistics—Provided when.**
10.04.070	**Certified copies of statistics—Fees—Disposition of funds.**
10.04.080	**Chapter provisions supplementary to state law.**

10.04.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Board of health" means the metropolitan board of health established by Section 10.101 of the Metropolitan Charter.

"Chief medical director" means the chief administrative officer of the board of health or his designated representative.

"Dead body" means a lifeless human body, or such severed parts of the human body, or the bones thereof, from the state of which it may reasonably be concluded that the death had recently occurred, and where the circumstances under which such dead body was found indicated that the death has not been recorded.

"Department of health" means the department of health of the metropolitan government. Such term shall include the board and all of its agents, employees and activities.

"Director of health" means the chief medical director of health of the board of health or his designated representative.

"Live birth" means a birth in which the child shows evidence of life after complete birth, that is, when the child is entirely outside of the mother, even if the cord is uncut and placenta still attached. The words "evidence of life" include heart action, breathing or a coordinated movement of a voluntary muscle.

"Midwife" means any person other than a physician who shall attend the birth or stillbirth of a child.

"Person in charge of interment" means any person who places or causes to be placed a deceased person, stillborn child or dead body or, after cremation, the ashes thereof, in the earth, a grave, tomb, vault, urn or other receptacle, either in a cemetery or at any other place, or disposes otherwise thereof.

"Physician" means a person authorized by law to practice a healing art in the state.

"Stillbirth" means a birth after twenty weeks of gestation which is not a live birth. (Prior code §§ 20-1-1 (part), 20-1-218)

10.04.020 Certificate of birth—Filing required.

A certificate of every birth occurring within the metropolitan government area, signed by the attendants at delivery, shall be filed with the board of health within ten days after the birth has occurred. Such certificate shall be filed by either the physician, osteopath or midwife in attendance at the birth, or, if not so attended, by one of the parents. (Prior code § 20-1-219)

10.04.030 Certificate of death or stillbirth—Filing required.

A certificate of every death or stillbirth occurring within the metropolitan government area shall be filed by the attendant at death, the funeral director or the person in charge of interment, with the board of health within seventy-two hours after the death or stillbirth occurred, or within seventy-two hours after the finding of a dead body, but in every instance prior to transportation or removal from the metropolitan government area. (Prior code § 20-1-220)

10.04.040 Certificates deemed in compliance when.

A. The furnishing and reporting of statistics and data concerning births, stillbirths and deaths to the local registrar of vital statistics, as appointed by the commissioner of public health of the state, shall be deemed a compliance with Sections 10.04.020 and 10.04.030 so long as the local registrar of vital statistics so appointed by the state commissioner of public health is an employee of the metropolitan board of health.

B. Should the local registrar of vital statistics, as appointed by the state commissioner of public health, be a person other than an employee of the metropolitan board of health, then such certificates of births, still births and deaths required by Sections 10.04.020 and 10.04.030 shall be furnished to and filed with the metropolitan board of health. (Prior code § 20-1-224)

10.04.050 Board of health—Authority.

There is imposed upon the board of health the authority and power to adopt and promulgate such rules and regulations which it deems necessary to carry out the provisions of this chapter. The board of health is further empowered to promulgate rules and regulations governing the collection, compilation, tabulation and reporting of vital statistics which may include, but shall not be limited to, the providing of forms to be used in reporting such statistics to the board of health and to provide forms whereby a person may make application for a certified copy of such statistics. (Prior code § 20-1-221)

10.04.060 Certified copies of statistics—Provided when.

A. The board of health is authorized to furnish to any person, upon application therefor, a certified copy of any statistic on file with the board of health, and the director of health is authorized to certify on behalf of the board of health that the copy of such statistic is a true and exact copy of the statistic on file with the board of health of the metropolitan government.

B. If the director of health is not satisfied that a person making application for a certified copy of any statistic has a legal or other vital interest in the statistic, he may refuse to issue a certified copy of the statistic until satisfactory evidence has been furnished to the director of health that the applicant has a legal or other vital interest in such statistic. Any person aggrieved by the findings and determinations of the director of health may appeal the actions of the director of health to the board of health, and the board of health may affirm, modify and affirm, as modified, or overrule the actions of the director of health. (Prior code § 20-1-222)

10.04.070 Certified copies of statistics—Fees—Disposition of funds.

A. All applications to the board of health for a copy of a statistic shall be accompanied by a fee of two dollars for each copy of a statistic which is requested, and no application will be considered that is not accompanied by the fee as established herein.

B. The director of health shall account for all money and fees collected by the board of health as authorized herein and shall deposit such money regularly in the general fund as other money received by the metropolitan government is deposited. All fees and money collected by the director of health as authorized herein shall be used for the purpose of supplementing the budget of the board of health. (Prior code § 20-1-223)

10.04.080 Chapter provisions supplementary to state law.

This chapter, or any of the provisions hereof, shall not be construed so as to conflict with Sections 68-3-101 et seq. of the Tennessee Code Annotated, entitled "Vital Records Act of 1977," but is intended to be complementary of and supplemental to Tennessee Code Annotated, Sections 68-3-101, et seq. (Ord. 90-1339 § 1 (20-8), 1990; prior code § 20-1-225)

Chapter 10.08

DRY WAREHOUSES FOR STORAGE OF FOOD

Sections:

10.08.010	**Definitions.**
10.08.020	**Permit required.**
10.08.030	**Records.**
10.08.040	**Disposition of food unfit for human consumption.**

10.08.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Chief medical director" means the chief administrative officer of the board of health or his designated representative.

"Department of health" means the department of health of the metropolitan government. Such term shall include the board and all of its agents, employees and activities. "Dry warehouse" means any place in which food is stored for hire, other than a refrigerated warehouse. (Prior code §§ 20-1-1 (part), 20-1-132 (part))

10.08.020 Permit required.

No person shall maintain or operate a dry warehouse without a permit issued by the chief medical director. (Prior code § 20-1-132 (part))

10.08.030 Records.

A. The owner or person in charge of a dry warehouse shall maintain written records of the following information:

1. The kind of food stored, its quantity in weight or count;

2. The date of receipt and the name and address of the person for whom stored;

3. The date of release and the name and address of the person to whom released.

B. The records shall be retained for a period of one year from the date of release. (Prior code § 20-1-134)

10.08.040 Disposition of food unfit for human consumption.

Food in a dry warehouse, which has become apparently unfit for human consumption, shall be kept separate and apart from wholesome food. The owner or person in charge of the dry warehouse shall notify the department of health and the owner of the affected food of the presence of such food. If the food is found unfit, it shall be denatured, marked "Condemned," and removed either upon the order of its owner or of the department of health. (Prior code § 20-1-133)

Chapter 10.12

MINERAL, SPRING AND OTHER DRINKING WATER

Sections:

10.12.010	**Definitions.**
10.12.020	**Information statement required.**
10.12.030	**Carbonated water preparation.**

10.12.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Chief medical director" means the chief administrative officer of the board of health or his designated representative.

"Department of health" means the department of health of the metropolitan government. Such term shall include the board and all of its agents, employees and activities. (Prior code § 20-1-1 (part))

10.12.020 Information statement required.

Every person who imports, manufactures or sells at wholesale any artificial or natural mineral spring or other water for drinking purposes shall file a statement with the department of health, setting forth the name of such water, the exact location from where it is obtained, its chemical analysis and the result of bacteriological examination, and in case of manufacture, the substances or elements entering into its composition. (Prior code § 20-1-140 (part))

10.12.030 Carbonated water preparation.

When carbonated water is prepared at the place where dispersed to the consumer, the potable water used shall be conducted from the public water supply system through closed pipes connected with the carbonating apparatus or carbonic acid gas tank from which it is dispensed to the consumer. (Prior code § 20-1-140 (part))

Chapter 10.16

DISEASE CONTROL

Sections:

10.16.010 Definitions.
10.16.020 Classification of diseases—Notification of authorities.
10.16.030 Notification of authorities—By healthcare providers.
10.16.040 Notification of authorities—By persons other than healthcare providers.
10.16.050 Notification of heads of households by healthcare providers.
10.16.060 Reporting outbreaks of gastroenteritis and dysentery.
10.16.070 Notification of authorities—By private diagnostic laboratories.
10.16.080 Action after notification—Chief medical director.
10.16.090 Interfering with duties of chief medical director.
10.16.100 Compliance required by hospital authorities.
10.16.110 Hospitalization of persons—Authorized when.
10.16.120 Work restrictions—Persons with tuberculosis.
10.16.130 Compliance required by persons with disease—Quarantine conditions.
10.16.140 Medical procedures after notification.
10.16.150 Incubation periods.
10.16.160 Minimum periods of communicability.
10.16.170 Methods of control—Certain diseases.
10.16.180 Methods of control—Contacts.
10.16.190 Methods of control—Carriers.
10.16.200 Concurrent disinfection.
10.16.210 Terminal disinfection.
10.16.220 School attendance restrictions—Children with certain diseases.
10.16.230 School attendance restrictions—Immunization required.
10.16.240 Serving or handling food prohibited by certain persons.
10.16.250 Sale of milk and milk products restricted when.

10.16.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Chief medical director" means the chief administrative officer of the board of health or his designated representative.

"Department of health" means the department of health of the metropolitan government. Such term shall include the board and all of its agents, employees and activities. (Prior code § 20-1-1 (part))

10.16.020 Classification of diseases—Notification of authorities.

A. The following diseases are declared to be contagious, infectious, communicable and dangerous to the public health. All physicians knowing or suspecting cases of these diseases and other persons knowing of cases or suspects of these diseases shall notify the chief medical director in accordance with the provisions of this chapter and Chapter 2.36:

Class I

Anthrax
Botulism
Brucellosis
Cholera
Dengue
Diphtheria
Encephalitis, infectious
Hepatitis, infectious
Leprosy
Leptospirosis
Malaria
Plague
Poliomyelitis
  Paralytic
  Nonparalytic
Psittacosis
Rabies in man
Relapsing fever
Salmonellosis
  Typhoid fever
  Other forms
Shigellosis
Smallpox
Typhus fever
  Epidemic
  Endemic
Yellow fever

Class II

Amebiasis
Glanders
Hepatitis, serum
Meningococcal infections
Rheumatic fever
Rocky Mountain spotted fever
Tetanus
Trichinosis
Tuberculosis, all forms
Tularemia

Class III

Influenza
Measles
Streptococcal infections, including scarlet fever
Whooping cough

Class IV

Gonorrhea	Syphilis
	Primary
	Secondary
	Early latent
	Other forms

B. All physicians and other persons knowing of or suspecting a case of any of these diseases shall notify the chief medical director or the department of health in accordance with the provisions of the statutes and regulations governing the control of communicable diseases in Tennessee. (Prior code § 20-1-19)

10.16.030 Notification of authorities—By healthcare providers.

Whenever any healthcare provider examines or treats any person known or suspected by him to be affected with any of the diseases declared to be notifiable by this chapter, he shall give notice of such disease as follows:

A. For diseases listed in Class I, notification shall be made as soon as possible, and within twelve hours by telephone, in person or by writing to the chief medical director or department of health, giving the name, age, sex, race and address of the patient and the name of the known or suspected disease;

B. For all of the diseases listed in Classes I and II, notification shall be made each week to the chief medical director or department of health of all cases or suspected cases of the disease which have come under his care or observation during the preceding week, such reports to be made on forms supplied by the state department of health for that purpose, and giving the name, age, sex, race and address of the patient and the name of the known or suspected disease;

C. For the diseases listed in Class III, notification shall be made each week to the chief medical director or department of health of the number of such cases which have come under his care or observation during the preceding week, such reports to be made on forms supplied by the state department of public health for that purpose;

D. For the diseases listed in Class IV, every healthcare provider or other person who makes a diagnosis of or treats or prescribes for a person with any of these diseases, and every superintendent or manager of a clinic, dispensary or charitable or penal institution in which there is a case of such disease, shall make a confidential report of such case immediately in writing to the chief medical director or department of health on a form supplied by the state department of public health, stating the name, address, age, sex, race and stage of the disease, as prescribed in Section 68-10-101, Tennessee Code Annotated. When a person with an infectious case fails or refuses to take treatment, the case shall be reported to the chief medical director or department of health by special report. (Ord. BL2023-2125 § 1, 2023; Ord. 90-1339 § 1 (20-1), 1990; prior code § 20-1-20)

10.16.040 Notification of authorities—By persons other than healthcare providers.

It shall be the duty of the following named persons to notify immediately the department of health of the existence of any known or suspected communicable disease as specified in this chapter, or as otherwise specified by the state department of health or the metropolitan department of health:

A. Superintendents of Hospitals. Section 10.16.020 is made applicable to superintendents of hospitals in reference to the reporting of notifiable diseases. Superintendents of hospitals shall be equally responsible for the report of these diseases as the healthcare provider.

B. Principals and Teachers. Principals and teachers of public and private schools shall report all known or suspected cases of diphtheria, encephalitis, infectious hepatitis, measles, meningococcal infections, poliomyelitis, psittacosis, salmonellosis (including typhoid fever), shigellosis, smallpox, streptococcal infections, typhus fever or whooping cough in children attending such schools.

C. Summer Camps. The owner or manager of any summer camp shall report immediately any case or suspected case of communicable disease occurring among campers.

D. Institutions and Jails. The managing officers of all public and private institutions and jails shall report all cases of suspected cases of diphtheria, encephalitis, gonorrhea, infectious hepatitis, meningococcal infections, poliomyelitis, psittacosis, salmonellosis (including typhoid fever), shigellosis, smallpox, syphilis or typhus fever at such institutions.

E. Dairies, Dairy Farms, Milk Plants and Food Establishments. Owners or managers of any dairy farm, dairy, milk plant or food establishment shall report all cases or suspected cases of diphtheria, infectious hepatitis, poliomyelitis, salmonellosis (including typhoid fever), shigellosis or streptococcal infections among their employees.

F. Parents, Guardians and Heads of Households. Parents, guardians and heads of households shall report any cases or suspected cases of diseases declared notifiable by Section 10.16.020 occurring in their households.

G. Midwives. Midwives shall report within six hours any cases of inflamed eyes in babies whom they have attended. (Ord. BL2023-2125 § 2, 2023; prior code § 20-1-21)

10.16.050 Notification of heads of households by healthcare providers.

It shall be the duty of any healthcare provider, immediately upon discovering a case or suspected case of communicable disease, to inform the head of household of this fact, to instruct the head of household of such isolation of the patient and concurrent disinfection as may be necessary to prevent spread of the infection. It shall be the duty of persons so informed to comply with such instructions, unless otherwise instructed by the chief medical director or his authorized agent; provided, that this section shall not be construed to mean that any healthcare provider not duly authorized by the chief medical director has authority to establish quarantine or isolation or remove established quarantine or isolation restrictions for those diseases for which official quarantine or isolation is required by this chapter. (Ord. BL2023-2125 § 3, 2023; prior code § 20-1-24)

10.16.060 Reporting outbreaks of gastroenteritis and dysentery.

Every physician, nurse, superintendent or other person in charge of any school, hospital, institution, labor camp or other camp who shall have knowledge of the occurrence of a number or group of cases of gastroenteritis, dysentery or other disease in which diarrhea is a prominent symptom shall report the same immediately by telephone to the chief medical director or department of health. (Prior code § 20-1-22)

10.16.070 Notification of authorities—By private diagnostic laboratories.

It shall be the duty of the director of each diagnostic laboratory in the metropolitan government area to notify the chief medical director or department of health of persons upon whom a positive specimen has been found for the following diseases by forwarding to the chief medical director or department of health, within twenty-four hours, a copy of the report made to the attending physician: anthrax, brucellosis, cholera, diphtheria, encephalitis, leprosy, leptospirosis, malaria, poliomyelitis, psittacosis, Rocky Mountain spotted fever, salmonellosis (including typhoid fever), shigellosis, gonorrhea, chancroid, syphilis, tuberculosis, tularemia and typhus fever. (Prior code § 20-1-23)

10.16.080 Action after notification—Chief medical director.

Whenever the chief medical director is notified or has reason to believe that there is a case of notifiable disease within his jurisdiction, he shall:

A. Either in person or through an authorized representative, immediately inquire into the circumstances surrounding the occurrence of such disease;

B. Establish and maintain quarantine, isolation or such other methods of control as are required by this chapter;

C. When notified that a communicable disease exists in any pupil or teacher at any school, forthwith inform the school authorities of such fact, and advise and require the school authorities to take necessary steps to prevent the spread of such disease;

D. Supply such information, instructions or available literature to the responsible person of the household as may be necessary to cause measures to be taken to prevent the spread of the disease. (Prior code § 20-1-25)

10.16.090 Interfering with duties of chief medical director.

No person shall interfere with or obstruct the entrance to any house or premises, or the inspection or examination of any occupant thereof by the chief medical director, his duly authorized agent or a representative of the state department of public health in the proper discharge of his official duties. (Prior code § 20-1-41)

10.16.100 Compliance required by hospital authorities.

It shall be the duty of every superintendent or other person in charge of any hospital or sanatorium, as soon as any disease declared by this chapter to be notifiable occurs in, is admitted to, or is examined or treated at any such hospital or sanatorium, to obey and enforce the provisions of all regulations relating to the isolation or observation of cases, carriers and suspects. (Prior code § 20-1-26)

10.16.110 Hospitalization of persons—Authorized when.

When, in the opinion of the chief medical director, proper isolation or care of any case, carrier or suspect of a communicable disease is not, or cannot be, effectually maintained on the premises occupied by the affected person by methods designated in this chapter, he may remove or require the removal of such person to a hospital or other proper place designated or approved by him. It shall be the duty of all persons concerned to

comply with the orders in reference to such removal. (Prior code § 20-1-27)

10.16.120 Work restrictions—Persons with tuberculosis.

A. Any person declared to be infected and in an active stage of reinfection tuberculosis shall be prohibited from working in any dairy, milk plant, food-handling establishment, beauty parlor, barbershop, mill, factory, mine or any other place of employment where there would be direct contact with food for public consumption or with other persons. Any owner or manager of any such establishment having knowledge of or suspecting an employee or prospective employee of having this disease in an active form shall not employ or continue to employ any such person or persons until the absence or arrest of the suspected disease has been determined and certified to by a physician holding an unlimited license to practice medicine in this state; provided, that such certification shall be acceptable to the chief medical director who, through state or local facilities, may require a physical or laboratory or X-ray examination or both without cost to the patient to determine the disease status.

B. The finding of the mycobacterium tuberculosis organism in a specimen of sputum from a patient or X-ray evidence of active tuberculosis or both by a physician or laboratory approved by the state department of public health shall be sufficient evidence of declaration of infectiousness under this chapter.

C. Any person declared to be infected and in an active stage of reinfection tuberculosis shall be prohibited from teaching or otherwise working in or attending any private or public school. Any superintendent, principal or teacher having knowledge of or suspecting a student or teacher of having tuberculosis in an active form shall prohibit the attendance of such person at a school until the absence or arrest of the suspected disease has been determined and certified to by a physician holding an unlimited license to practice medicine in the state; provided, that such certification must be acceptable to the chief medical director in the same manner and under the same conditions as stated above. (Prior code § 20-1-28)

10.16.130 Compliance required by persons with disease—Quarantine conditions.

A. Every person who is infected with a communicable disease, who is suspected of having a communicable disease or who is a contact with a case of communicable disease shall strictly observe and comply with all official orders, isolation and quarantine regulations and restrictions given or imposed by the chief medical director or the state department of public health, in conformity with law and pursuant to this chapter.

B. No person other than the attending physician and authorized attendants shall enter, and no one shall permit any other person to enter, any room, apartment or premises quarantined for a communicable disease without a written permit from the chief medical director.

C. No person except the chief medical director or his duly authorized agent shall remove, conceal or deface any quarantine or isolation placard. (Prior code § 20-1-29)

10.16.140 Medical procedures after notification.

It shall be duty of the chief medical director, on receiving a report of anthrax, botulism, brucellosis, cholera, dengue, diphtheria, infectious encephalitis, infectious hepatitis, leptospirosis, malaria, plague, poliomyelitis, psittacosis, rabies in man, relapsing fever, Rocky Mountain spotted fever, salmonellosis (including typhoid fever), shigellosis, smallpox, trichiniasis, tularemia, typhus fever or yellow fever, to:

A. Confer with the physician or other person making such report;

B. Collect such specimens for laboratory examination, including nose and throat swabs, blood, feces and urine, or other types, as may be necessary to confirm the diagnosis of the disease or to find the source of the infection or both;

C. Make a complete epidemiological investigation and record the findings on a communicable disease field record; and

D. Establish such isolation or quarantine measures as provided by this chapter. (Prior code § 20-1-30)

10.16.150 Incubation periods.

For the purpose of this article, the accepted periods of incubation of certain communicable diseases are declared to be as follows, and shall be observed where indicated by the chief medical director in carrying out control measures:

Amebiasis	5 days to several months
Anthrax	Within 7 days
Botulism	Usually within 18 hours
Brucellosis	Usually 14 to 30 days
Cholera	3 to 5 days
Dengue	3 to 5 days
Diphtheria	2 to 5 days
Encephalitis, infectious	5 to 15 days
Glanders	1 to 5 days
Gonorrhea	3 to 9 days

Hepatitis, infectious	10 to 40 days
Hepatitis, serum	2 to 6 months
Influenza	24 to 48 hours
Leprosy	1 to several years
Leptospirosis	4 to 19 days
Malaria	
P. vivax	13 to 15 days
P. Falciparum	12 days
P. Malariae	28 to 30 days
Measles	About 10 days
Meningococcal infections	2 to 10 days
Plague	2 to 6 days
Poliomyelitis	7 to 21 days
Psittacosis	6 to 15 days
Rabies in man	Usually 2 to 6 weeks
Relapsing fever	Up to 12 days
Rheumatic fever	Not applicable
Rocky Mountain spotted fever	3 to 10 days
Salmonella Typhosa	1 to 3 weeks
Salmonella Paratyphi	1 to 10 days
Salmonella Schottmuelleri	1 to 10 days
Salmonellosis, other	6 to 48 hours
Shigellosis	36 hours to 7 days
Smallpox	7 to 16 days
Streptococcal infections	2 to 5 days
Syphilis	10 days to 10 weeks
Tetanus	4 days to 3 weeks
Trichinosis	2 to 28 days
Tuberculosis	Variable
Tularemia	24 hours to 10 days
Typhus fever	
Epidemic	6 to 15 days
Endemic	6 to 14 days
Whooping cough	7 to 21 days
Yellow fever	3 to 6 days

(Prior code § 20-1-31)

10.16.160 Minimum periods of communicability.

For the purpose of this chapter, the minimum periods of communicability for clinical cases of the diseases named in this section are declared to extend from the onset of the earliest symptoms to the time specified for each disease, and shall be observed by the chief medical director in controlling cases of communicable diseases:

Amebiasis—During intestinal infection.

Anthrax—Until lesions have healed.

Botulism—Not applicable.

Brucellosis—Rarely transmitted from man to man.

Cholera—Until the feces are free of the organism.

Dengue—Not transmitted from man to man. Vector—Aedes aegypti.

Diphtheria—Until fourteen days from first symptoms, provided abnormal discharges have ceased, and provided three successive negative nose and throat cultures have been had.

Encephalitis, infectious—Not transmitted from man to man. Vector—Culex tarsalis.

Glanders—Until lesions have completely healed.

Gonorrhea—Until adequate treatment has been given.

Hepatitis, infectious—Unknown.

Hepatitis, serum—Unknown. Transmitted only through blood or blood products.

Influenza—One week from onset.

Leprosy—Until lesions are completely healed.

Leptospirosis—Not applicable. Transmission from man to man negligible.

Malaria—Not transmitted from man to man. Vector—Anopheles quadrimaculatus.

Measles—Until five days after rash has appeared.

Meningococcal infections—Until fourteen days after onset, provided abnormal discharges have ceased.

Plague:

Bubonic type—Not communicable from man to man.

Pneumonic type—Until temperature has returned to normal and all abnormal discharges have ceased.

Poliomyelitis—Until seven days from onset. Virus may remain in feces for three to six weeks or longer.

Psittacosis—Until temperature has returned to normal and all abnormal discharges have ceased.

Rabies in man—Rarely transmitted from man to man.

Relapsing fever—Not transmitted from man to man.

Rheumatic fever—Not known to be communicable.

Rocky Mountain spotted fever—Not transmitted from man to man.

Salmonellosis:

Typhoid fever—Until at least one week after temperature has returned to normal and until three consecutive negative feces and urine cultures, taken at least one week apart and at least ten days after cessation of antibiotic therapy, show the absence of the infective organisms.

Other salmonella infections—Same as for typhoid fever.

Shigellosis—Until one week after temperature has returned to normal or one week after cessation of sulfonamide therapy or both and until two consecutive feces specimens taken at least one week apart show the absence of the infective organism.

Smallpox—Until the disappearance of crusts and scabs.

Streptococcal infections—Any patient who has beta hemolytic streptococcal infection will be isolated for

twenty-four hours, and immediately be given an appropriate chemotherapeutic or antibiotic agent. He will be allowed to return to school or normal activities when he has been afebrile for three days, and there are no abnormal discharges or other complications. All cases of beta hemolytic streptococcal infection are to be reported to the department of health. There will be no quarantine of contacts.

Syphilis—Until adequate treatment has been given to assure that an infectious relapse will not occur.

Tetanus—Not transmitted from man to man.

Trichinosis—Not transmitted from man to man.

Tuberculosis—As long as the specific causative organisms are discharged from the patient.

Tularemia—Not transmitted from man to man.

Typhus fever:

Epidemic—Not transmitted from man to man.

Endemic—Not transmitted from man to man.

Whooping cough—Until three weeks after development of the characteristic whoop or until five weeks after the appearance of first catarrhal symptoms.

Yellow fever—Not transmitted from man to man. (Prior code § 20-1-32)

10.16.170 Methods of control—Certain diseases.

A. The chief medical director, upon receiving a report of a case of any disease designated in this chapter, shall promptly institute and maintain during the period of communicability, such methods of control as are designated in this section:

1. When the disease is diphtheria, plague or smallpox, official quarantine shall be instituted, the house or apartment where such disease exists shall be placarded, the patient shall be isolated, contact between the patient and all except the necessary attendants shall be strictly prohibited and concurrent and terminal disinfection practiced.

2. When the disease is glanders, poliomyelitis or psittacosis, the patient shall be officially isolated in a separate room, and contact between the patient and all except the necessary attendants shall be strictly prohibited and concurrent disinfection shall be practiced.

3. When the disease is cholera, infectious hepatitis, salmonellosis (including typhoid fever) or shigellosis, the patient shall be officially isolated in a room separate and apart from others in the household where possible, the room shall be effectually screened against flies where possible, concurrent disinfection shall be practiced, contact with all except the necessary attendants shall be strictly prohibited until convalescence and the patient shall be continued under observation (infectious hepatitis excluded) until negative laboratory examinations are secured as provided elsewhere in this chapter for release. In the case of infectious hepatitis, instructions shall be given to continue concurrent disinfection for at least two months after recovery.

4. When the disease is anthrax, influenza, measles, meningococcal infections, rabies, streptococcal infections or whooping cough, the attending physician should instruct the householder that the patient should be isolated and concurrent disinfection practiced. Any patient who has beta hemolytic streptococcal infection shall be isolated for twenty-four hours, and immediately be given an appropriate chemotherapeutic or antibiotic agent. He may return to school or normal activities when he has been afebrile for three days, and there are no abnormal discharges or other complications. All cases of beta hemolytic streptococcal infection shall be reported to the department of health. There need be no quarantine of contacts.

5. When the disease is amebiasis or leprosy, the patient shall be held under observation to ensure that scrupulous concurrent disinfection is practiced.

6. When the disease is gonorrhea, syphilis or tuberculosis, the premises shall be placarded and the patient isolated whenever the infected person fails or refuses to take the necessary measures to prevent the spread of the disease to others and as provided by statute.

7. When the disease is dengue, malaria or yellow fever, every effort should be made to prevent the transmission of the infection, and where possible, the house shall be screened to prevent ingress of mosquitoes.

8. When the disease is botulism, brucellosis, infectious encephalitis, serum hepatitis, leptospirosis, relapsing fever, Rocky Mountain spotted fever, tetanus, trichinosis, tularemia or endemic typhus fever, the patient should be isolated to protect him from secondary infections.

B. When the chief medical director finds that the methods designated are ineffective in the control of an individual case of communicable disease or other measures are indicated, or that disease not described in this section, but recognized as a reportable communicable disease by the Tennessee Department of Health or as a notifiable infectious disease by the Centers for Disease Control and Prevention, warrants a method of control, he or she is authorized to employ such additional restrictions as may be necessary for the protection of the public health. (Ord. BL2019-44 § 1, 2019; prior code § 20-1-33)

10.16.180 Methods of control—Contacts.

It shall be the duty of the chief medical director to institute and maintain measures for the control of

contracts of persons with diphtheria, plague and smallpox by quarantine or observation of such contacts in the same manner as that prescribed for the person with the disease to which the contact has been exposed from last contact until time has elapsed equivalent to the maximum incubation period of the disease unless the contact gives evidence of immunity to the disease. The chief medical director is authorized at his discretion to impose the above restrictions on contacts of other diseases transmitted from man to man, directly or indirectly, whenever, in his judgment, the disease can be effectively controlled by this procedure. The chief medical director is further authorized, at his discretion and upon his own responsibility, to grant a provisional written permit modifying the restrictions for contacts whenever, in his judgment, such action will not result in the spread of the disease. (Prior code § 20-1-34)

10.16.190 Methods of control—Carriers.

A. Convalescent or healthy carriers of salmonella (including typhoid) or shigella organisms:

1. Shall be instructed fully by the chief medical director in the precautions necessary to protect others from infection, including methods of excreta disposal;

2. Shall not engage in any occupation involving the handling of milk, food or drink for use by others;

3. Shall notify the chief medical director of any change of address;

4. Shall be visited by the chief medical director or his duly authorized representative as often as necessary to assure that these regulations are being observed;

5. Shall be released from observation by the chief medical director:

a. Convalescent, after the temperature has been normal for at least one week and after a minimum of three consecutive negative fecal cultures (in typhoid, also urine cultures) taken at least one week apart and at least ten days after cessation of antibiotic therapy, show the absence of the organisms,

b. Healthy, after a minimum of three consecutive negative fecal cultures (in typhoid, also urine cultures) taken at least one week apart show the absence of the organisms, provided no antibiotic therapy has been given before or is given during the intervals between the collection of specimens.

B. Chronic carriers of salmonella (including typhoid) or shigella organisms:

1. Shall be instructed fully by the chief medical director in the precautions necessary to protect others from infections, including methods of excreta disposal;

2. Shall not engage in any occupation involving the handling of milk, food or drink for use by others;

3. Shall notify the chief medical director of any change of address;

4. Shall be visited by the chief medical director or his duly authorized representative at least once a year or oftener as necessary, for the purpose of determining if these regulations are being observed;

5. Shall be required to sign an acknowledgment in triplicate of his condition, the danger of this condition to others and the precautions necessary to be taken to prevent being the source of cases of the diseases. One copy shall be kept by the carrier, one copy shall be filed in the office of the chief medical director and one copy shall be sent by the chief medical director to the division of preventable diseases, state department of public health;

6. Shall be released from observation only upon approval of the commissioner of the state department of public health.

C. In requesting release of a chronic carrier, proof shall be submitted of a minimum of six consecutive negative fecal cultures (in urinary carriers, a minimum of six consecutive negative urine cultures) taken at least one month apart, the last two of which must be validated by collection in a hospital or otherwise directly supervised, and that no antibiotic has been given during the ten days immediately preceding the collection of each specimen. In releasing former fecal carriers, the final two fecal cultures may be validated by the giving of lycopodium; or a negative bile culture may be substituted for such validation. (Prior code § 20-1-35)

10.16.200 Concurrent disinfection.

It shall be the duty of the chief medical director to give detailed instructions to the nurses or other persons caring for a case of a communicable disease which has been officially isolated or quarantined in regard to the disinfection and disposal of all articles contaminated directly or indirectly by contact with the patient. It shall be the duty of the nurse or attendant and head of the household faithfully to carry out such disinfection throughout the communicable period of the disease. (Prior code § 20-1-36)

10.16.210 Terminal disinfection.

It shall also be the duty of the chief medical director, prior to the release from official isolation or quarantine of any case of communicable disease, to have instituted such terminal disinfection and cleansing measures as he may deem necessary. Terminal disinfection shall in no case be a substitute for concurrent disinfection throughout the course of the disease. (Prior code § 20-1-37)

10.16.220 School attendance restrictions—Children with certain diseases.

A. In addition to the diseases declared by this chapter to be notifiable, it shall be the duty of the school authorities to exclude from any public or private school, any child who is infected with, or who is suspected of having the following diseases: chickenpox, contagious conjunctivitis (pink eye), favus, German measles, impetigo contagiosa, mumps, pediculosis, ringworm, scabies, streptococcal infections and Vincent's infection.

B. Children with impetigo contagiosa and ringworm shall be excluded from school until treatment has been instituted and preventive measures started. (Prior code § 20-1-40)

10.16.230 School attendance restrictions—Immunization required.

A. The chief medical director shall, immediately upon the convening of the respective schools in the metropolitan government area, make a survey for the purpose of ascertaining all those in attendance who have not been immunized against diphtheria, pertussis, tetanus, poliomyelitis, rubeola (red measles), rubella (German measles) and smallpox, and issue notice to the respective parents of such children of this requirement for compulsory immunization of schoolchildren against diphtheria, pertussis, tetanus, poliomyelitis, rubeola (red measles), rubella (German measles) and smallpox as a condition for continued attendance in school, and designate a reasonable time within which immunization procedure shall be completed. When and if such parent shall fail or refuse to take his child to his family physician for the immunization procedure within the time designated by the chief medical director, he shall be notified that unless a written opinion is furnished the chief medical director from a physician that it would not be prudent, on account of sickness or other cause, to administer the prophylactic treatment, the chief medical director shall proceed to enforce the provisions of this section. The chief medical director is authorized to furnish, at the department's expense, the necessary vaccine or serum, or both, and to perform the necessary immunization service for those children whose parents request the same.

B. The immunizations against diphtheria, pertussis, tetanus, poliomyelitis, rubeola (red measles), rubella (German measles) and smallpox, as mentioned in subsection A of this section, shall also be a condition precedent to the right to be in attendance upon any day nursery school or other similar agency. (Prior code § 20-1-42)

10.16.240 Serving or handling food prohibited by certain persons.

No person who is ill with cholera, diphtheria, infectious hepatitis, poliomyelitis, salmonellosis (including typhoid fever), shigellosis or streptococcal infection or who resides in a household with a case of any of these diseases or is a carrier of salmonella or shigella organisms shall serve or handle in any manner whatsoever food intended for sale or public consumption. (Prior code § 20-1-39)

10.16.250 Sale of milk and milk products restricted when.

When a case of cholera, diphtheria, infectious hepatitis, poliomyelitis, salmonellosis (including typhoid fever), shigellosis, streptococcal infection, or a carrier of salmonella or shigella exists or resides on any farm or dairy producing milk, cream, butter, cheese or other milk products, the chief medical director shall prohibit the removal or sale of these products from such farm or dairy, unless the handling of the products is done in a manner which will preclude the possibility of contamination and unless written approval of such removal is granted by the chief medical director. If these products are sold or consumed in another health jurisdiction, he shall immediately report to the local health officer concerned, giving necessary information regarding the disease, the name and location of such farm or dairy and the place or places where these products are sold or consumed. Whenever possible, it is desirable for the cases and carriers of this classification to be removed entirely from the premises where food is produced, processed, sold or served for public consumption. (Prior code § 20-1-38)

Chapter 10.18

PROHIBITION OF SMOKING IN METROPOLITAN BUILDINGS

Sections:

10.18.010	**Definitions.**
10.18.020	**Smoking prohibition.**
10.18.030	**Smoking in non-metropolitan government buildings.**
10.18.040	**Posting of signs.**
10.18.045	**Smoking on and near hospital property prohibited.**
10.18.046	**Vaping on and near hospital property prohibited.**
10.18.050	**Penalties.**

10.18.010 Definitions.

For the purposes of this chapter, the words and phrases herein shall have the following meanings:

"Enclosed area" means all space between a floor and ceiling that is enclosed on all sides by solid walls or windows, exclusive of doorways, which extend from the floor to ceiling.

"Metropolitan government building" means any structure or enclosed area owned by the metropolitan government including the field and the stadium bowl owned by the Sports Authority of the Metropolitan Government, including those portions of buildings owned by other entities which are rented or leased by the metropolitan government, except that the term "metropolitan government building" does not include:

(a) Housing or residences under the operation and control of the metropolitan development and housing agency; and

(b) Office space rented or leased by the metropolitan government to private, nongovernmental tenants with three or fewer employees, where smoke from the rented or leased office space cannot infiltrate into an area where smoking is prohibited.

"Smoking" means the burning of a lighted cigarette, cigar, pipe or any other matter or substance which contains tobacco.

"Vaping" means the heating and aerosolization of matter which contains nicotine or other substances for the purpose of inhalation through the use of an Electronic Smoking Device (ESD). (Ord. BL2020-162 § 1, 2020; Ord. BL2008-331 § 1, 2008; Ord. 98-1381 § 1, 1998; Amdt. 1 to Ord. 95-1397, 6/6/95; Ord. 95-1397 § 1, 1995; Ord. 95-1316 § 1, 1995; Ord. 94-1119 § 1, 1995; Ord. 94-1035 § 1, 1994)

10.18.020 Smoking prohibition.

Smoking is prohibited inside all metropolitan government buildings and on the grounds of all outdoor amphitheaters with a seating capacity of at least six thousand owned or operated by the metropolitan government. Smoking is also prohibited in all non-enclosed areas of public spaces where smoke can infiltrate into a metropolitan government building. Further, smoking is prohibited on the grounds of all playgrounds owned by the metropolitan government. (Ord. BL2020-301 § 1, 2020; Amdt. 1 to Ord. BL2016-205 § 1, 2016; Ord. BL2016-205 § 1, 2016; Ord. BL2008-331 § 2, 2008; Ord. 94-1119 § 2, 1995; Ord. 94-1035 § 2, 1994)

10.18.030 Smoking in non-metropolitan government buildings.

Those departments, boards, agencies and private owners listed in Section 10.18.010, Metropolitan government building, subsection 1, shall not be precluded from also prohibiting smoking in those facilities or areas of such facilities that are not subject to this chapter. (Ord. 94-1119 § 3, 1995; Ord. 94-1035 § 3, 1994)

10.18.040 Posting of signs.

In all metropolitan government buildings where smoking is prohibited under the provisions of this chapter, the department of general services or department, board or agency having control of such building, shall conspicuously post, or cause to be posted, signs stating that smoking is prohibited and that violators are subject to fines. (Ord. 94-1119 § 4, 1995; Ord. 94-1035 § 4, 1994)

10.18.045 Smoking on and near hospital property prohibited.

A. Smoking is prohibited on all hospital property and in the public right-of-way located within fifty feet of the entrance to a hospital.

B. In addition to the prohibitions included in subsection A, smoking is prohibited in the following public areas, provided signs are posted in such areas designating them as nonsmoking:

1. Within two hundred feet of all entrances to the following Vanderbilt University Hospital Facilities:

a. Vanderbilt University Hospital located at 1211 Medical Center Drive.

b. Vanderbilt Clinic located at 1301 Medical Center Drive.

c. Medical Center East - North Tower located at 1215 21st Avenue South.

d. Medical Center East - South Tower located at 1212 21st Avenue South.

e. Medical Center North located at 1161 21st Avenue South.

f. Monroe Carrell, Jr. Children's Hospital at Vanderbilt located at 2100 Children's Way.

g. Vanderbilt Psychiatric Hospital located at 1601 23rd Avenue South.

h. Medical Arts Building located at 1211 21st Avenue South.

i. Vanderbilt Stallworth Rehabilitation Hospital located at 2201 Children's Way.

2. Within two hundred feet of all entrances to the following Saint Thomas Health facilities:

a. Saint Thomas Hospital located at 4220 Harding Road.

b. Saint Thomas Heart located at 4230 Harding Road.

c. Baptist Hospital located at 2000 Church Street.

d. Baptist Hospital Sports Medicine located at 2011 Church Street.

e. Saint Thomas Heart at Baptist Hospital located at 222 22nd Avenue North.

f. Center for Breast Health at Baptist Hospital located at 300 20th Avenue North.

g. Center for Spinal Surgery at Baptist Hospital located at 2011 Murphy Avenue.

3. Within two hundred feet of all entrances to Nashville General Hospital's facilities located at 1818 Albion Street. (Amdt. 1 to Ord. BL2012-115, § 1, 2012; Ord. BL2012-115, § 1, 2012)

10.18.046 Vaping on and near hospital property prohibited.

A. Vaping is prohibited on all hospital property and in the public right-of-way located within fifty feet of the entrance to a hospital.

B. In addition to the prohibitions included in subsection A, vaping is prohibited in the following public areas, provided signs are posted in such areas designating them as nonsmoking:

1. Within two hundred feet of all entrances to the following Vanderbilt University Medical Center Facilities:

a. Vanderbilt University Hospital located at 1211 Medical Center Drive.

b. Vanderbilt Clinic located at 1301 Medical Center Drive.

c. Medical Center East - North Tower located at 1215 21st Avenue South.

d. Medical Center East - South Tower located at 1212 21st Avenue South.

e. Medical Center North located at 1161 21st Avenue South.

f. Monroe Carroll, Jr. Children's Hospital at Vanderbilt located at 2100 Children's Way.

g. Vanderbilt Psychiatric Hospital located at 1601 23rd Avenue South.

h. Medical Arts Building located at 1211 21st Avenue South.

i. Vanderbilt Stallworth Rehabilitation Hospital located at 2201 Children's Way.

2. Within two hundred feet of all entrances to the following Saint Thomas Health facilities:

a. Saint Thomas Hospital West located at 4220 Harding Road.

b. Saint Thomas West Medical Office Building located at 4230 Harding Road.

c. NEC located at 4304-4306 Harding Pike.

d. Saint Thomas Mid-Town Hospital located at 2000 Church Street.

e. Saint Thomas Sports Medicine located at 2011 Church Street.

f. Saint Thomas Mid-Town — Old Security Building 1914 Church Street.

g. HRT Mid-State 2010 Church Street.

h. Medical Office Building at Saint Thomas Mid-Town located at 300 20th Avenue North.

i. Heart Building at St Thomas Mid-Town 301 21st Avenue North.

j. Faith Family Clinic 326 21st Avenue North.

k. Terrace Pediatrics Building 342 21st Avenue North.

l. Saint Thomas Heart at Saint Thomas Mid-Town located at 222 22nd Avenue North.

m. Saint Thomas Medical Partners UT Clinic 316 22nd Ave North.

n. HRT — Plazas I and II 2004 Hayes Street.

o. Craig Wound Care Center 2000 Murphy Avenue.

p. Saint Thomas Mid-Town located at 2011 Murphy Avenue.

q. Saint Thomas Medical Partners Express Care Clinic 1911 State Street.

3. Within two hundred feet of all entrances to the following Nashville General Hospital Health facilities:

a. Nashville General Hospital located at 1818 Albion Street.

b. Nashville Healthcare Center located at 1810 Albion Street.

c. Nashville Healthcare Center located at 1919 Charlotte Avenue.

4. Within two hundred feet of all entrances to the following Metro Department of Health facilities:

a. Lentz Public Health Center located at 2500 Charlotte Pike.

b. Woodbine Public Health Center located at 224 Oriel Ave.

c. South Nutrition Center located at 3718 Nolensville Pike.

d. East Public Health Center located at 1015 East Trinity Lane.

e. Metro Animal Care and Control located at 5125 Harding Place. (Amdt. 1 to Ord. BL2020-162 § 2, 2020; Ord. BL2020-162 § 2, 2020)

Editor's note—Ord. BL2020-162, § 2, passed March 5, 2020, set out provisions intended for use as § 10.18.045. At the editor's discretion, to prevent duplication of section numbers, these provisions have been included as § 10.18.046.

10.18.050 Penalties.

Any person found in violation of the provisions of this chapter shall be punished by a fine not to exceed fifty dollars. (Ord. 94-1119 § 6, 1995; Ord. 94-1035 § 5, 1994)

Chapter 10.19

PROHIBITION OF SMOKING IN CERTAIN AGE-RESTRICTED VENUES

Sections:

10.19.010	**Definitions.**
10.19.020	**Smoking and use of vapor products in age-restricted venues prohibited.**
10.19.030	**Enforcement.**
10.19.040	**Violations and penalties.**
10.19.050	**Severability.**

10.19.010 Definitions.

For the purposes of this chapter, the words and phrases herein shall have the following meanings:

"Age-restricted venue" means a legal establishment that affirmatively restricts access to its buildings or facilities at all times to persons who are twenty-one years of age or older by requiring each person who attempts to gain entry to those buildings or facilities to submit for inspection an acceptable form of identification for the express purpose of determining if the person is twenty-one years of age or older.

"Cigar bar" means a legal establishment that:

1. Holds a valid license or permit for the on-premise consumption of alcoholic beverages;

2. Generates a portion of its total annual gross income from the on-site sale of cigars and the rental of humidors;

3. Does not knowingly sell products or services, or permit entrance to the premises, to a person who is less than twenty-one years of age; and

4. Does not permit vaping or the smoking of products other than cigars on the premises.

"Hookah bar" means a legal establishment that:

1. Generates a portion of its total annual gross income from the on-site sale and consumption of shisha tobacco products with a hookah;

2. Does not knowingly sell products or services, or permit entrance to the premises, to a person who is less than twenty-one years of age; and

3. Does not permit the smoking or vaping of products other than shisha tobacco on the premises.

"Retail tobacco store" means a retail store that derives its largest category of sales from tobacco products and accessories.

"Retail vapor product store" means a retail store that derives its largest category of sales from vapor products and accessories.

"Smoking" means inhaling, exhaling, burning, or carrying any lighted cigar, cigarette, pipe, or other lighted tobacco product in any manner or in any form. "Smoking" also means using a vapor product that delivers aerosolized or vaporized nicotine, or any other substance, to the person inhaling from the device.

"Vapor Bar" means a legal establishment that:

1. Holds a valid license or permit for the on-premises consumption of alcoholic beverages;

2. Generates a portion of its total annual gross income from the on-site sales of vapor products and accessories;

3. Only permits on-premises vaping of hemp-derived cannabinoid products, which are sold by the establishment, and consumed through devices owned and provided by the establishment;

4. Does not sell products or services to a person less than twenty-one years of age and is an age-restricted venue;

5. Does not permit vaping or smoking of cigars, cigarettes, or any other product containing nicotine, synthetic nicotine, or tobacco; and

6. Operates in accordance with all applicable Tennessee state laws.

"Vapor product":

1. Means any noncombustible product containing nicotine or any other substance that employs a mechanical heating element, battery, electronic circuit, or other mechanism, regardless of shape or size, that can be used to produce or emit a visible or non-visible vapor;

2. Includes any electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe, or similar product, and any vapor cartridge, any substance used to refill a vapor cartridge, or other container of a solution containing nicotine or any other substance that is intended to be used with or in an electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe, or similar product; and

3. Does not include any product regulated under Chapter V of the Food, Drug, and Cosmetic Act (21 U.S.C. § 351 et seq.), as may be amended from time to time. (Amdts. 2 and 3 to Ord. BL2022-1383 § 1, 2022; Ord. BL2022-1383 § 1, 2022)

10.19.020 Smoking and use of vapor products in age-restricted venues prohibited.

A. Smoking and the use of vapor products is prohibited in all age-restricted venues.

B. Notwithstanding subsection A of this section, the prohibition on smoking and the use of vapor products in age-restricted venues shall not apply to:

1. retail tobacco stores;
2. retail vapor product stores;
3. cigar bars;
4. hookah bars;

5. vapor bars. (Amdts. 2 and 3 to Ord. BL2022-1383 § 1, 2022; Ord. BL2022-1383 § 1, 2022)

10.19.030 Enforcement.

A. No person shall engage in smoking or the use of vapor products in an age-restricted venue where smoking and the use of vapor products is prohibited by this chapter.

B. No person who owns, manages, operates, or otherwise controls an age-restricted venue shall knowingly allow any person to engage in smoking or the use of vapor products in an age-restricted venue where smoking and the use of vapor products is prohibited by this chapter. For purposes of this subsection, "knowingly allow" means the person has actual notice of or, through reasonable due diligence, should know that a person is engaging in smoking or the use of vapor products.

C. "No Smoking" signs or the international "No Smoking" symbol, and "No Vapor" signs or the "No Vaping/"No E-Cigarette" symbol shall be clearly and conspicuously posted at every entrance to any age-restricted venue where smoking and the use of vapor products is prohibited by this chapter by the owner, operator, manager, or other person in control of the age-restricted venue.

D. The presence or absence of signs shall not be a defense to a charge of smoking or the use of vapor products pursuant to this chapter.

E. No person shall intimidate, threaten any reprisal, or effect any reprisal, for the purpose of retaliating against another person who seeks to attain compliance with this chapter.

F. The department of health shall have the authority and responsibility for enforcing the provisions of this chapter. Notwithstanding the foregoing, nothing in the provisions of this chapter shall be construed to limit the authority of any other departments, boards, commissions, agencies, officers, and employees of the Metropolitan Government of Nashville and Davidson County to enforce the provisions of this chapter. (Amdt. 1 to Ord. BL2022-1383 § 1, 2022; Ord. BL2022-1383 § 1, 2022)

10.19.040 Violations and penalties.

A. Any person found in violation of the provisions of this chapter shall be punished by a fine not to exceed fifty dollars.

B. Each instance of smoking or the use of vapor products in violation of this chapter shall constitute a separate violation.

C. Each refusal to comply with a request to conform to the requirements of this chapter shall constitute a separate violation. (Ord. BL2022-1383 § 1, 2022)

10.19.050 Severability.

Should any portion of this chapter be declared to be invalid by any court of competent jurisdiction, such provision shall be severed and shall not affect the validity of the remaining provisions. (Amdt. 3 to Ord. BL2022-1383 § 1, 2022)

Chapter 10.20

WASTE MANAGEMENT*

Sections:

Article I. General Regulations

10.20.001 Waste services department created.
10.20.002 Responsibilities.
10.20.003 Director of waste services—Qualifications and compensation.
10.20.004 Same—Powers and duties.
10.20.010 Definitions.
10.20.020 Metropolitan government authority.
10.20.030 Director authority.
10.20.040 Adoption of rules and regulations.
10.20.050 Exemptions.
10.20.060 Sanitary landfill site—Extension of permit and use.
10.20.070 Information required on dump trucks—Violation and penalty.
10.20.072 Dumpster collection and requirements.
10.20.075 Information required on vehicles transporting used tires—Violation and penalty.
10.20.080 Disposal and placement of battery boxes and parts.
10.20.085 Brush collection.
10.20.090 Enforcement/right of entry.
10.20.095 Yard waste, corrugated cardboard and electronic waste banned from solid waste collection.
10.20.100 Private collection permits.
10.20.105 Recycling services to be made available by waste haulers.
10.20.110 Container requirements, ownership and use; scavenging.
10.20.120 Nuisance declared when.
10.20.130 No dumping permitted.

Article II. Urban Services District—Waste Collection And Disposal

10.20.200 Director of waste services authority.
10.20.220 Collection requirements.
10.20.240 Hazardous, pathogenic and radioactive waste.
10.20.250 Building debris—Responsibility for removal.
10.20.260 Public trash receptacles—Purpose—Specifications.

Article III. Disposal Facilities, Fees And Charges

10.20.300 Sanitary landfills established—Fee required.
10.20.310 Tip fees generally.
10.20.330 Tip fee—Wood waste, chipper residue and yard waste.
10.20.340 Tip fees—Increased for out-of-county users.
10.20.350 Vehicle requirements—Dumping times.
10.20.360 Solid waste generator fees.
10.20.365 Convenience center and special waste fees.
10.20.370 Collection of fees.
10.20.380 Providers of solid waste disposal service—Fees—Other rules.
10.20.390 Calculation of fees.
10.20.395 Periodic reports.

Article IV. Waste Management Plan Report

10.20.400 Waste management plan report.

Article V. Waste Management Development Review Fee

10.20.500 Waste management development review fee.

***Editor's note—**Ord. No. BL2010-718, § 1, approved August 18, 2010, repealed the former Ch. 10.20, §§ 10.20.010—10.20.500, and enacted a new Ch. 10.20 as set out herein. The former Ch. 10.20 pertained to solid waste collection and disposal and derived from Prior Code §§ 36-1-2, 36-1-2.1, 36-1-2.2, 36-1-40—36-1-44; 36-2-1—36-2-20, 36-2-23—36-2-26; Amdt. 3 to Ord. 89-825, 11-21-89; Ord. 89-825 § 5, 1989; Amdt. 2 to Ord. 89-826, 8-1-89; Ord. 89-826 §§ 1, 2, 1989; Ord. 90-1108 § 1, 1990; Amdt. 1 to Ord. 91-44, 11-19-91; Ord. 91-44 § 1, 1991; Ord. 91-1516 § 1, 1991; Ord. 91-1603 § 1, 1991; Ord. 91-1604 §§ 1, 2, 4, 5, 1991; Ord. 91-1651 § 1, 1991; Ord. 92-325 § 1, 1992; Ord. 93-821 §§ 1—4, 6, 7, 10—12, 1993; Ord. 94-914 § 1, 1994; Ord. 94-988 § 1, 1994; Ord. 94-1063 § 1, 1994; Amdts. 1 and 2 to Ord. 98-1109 §§ 1, 2, 1998; Ord. 98-1109 § 1, 1998; Ord. 98-1110 § 1, 1998; Ord. 98-1389 § 2, 1998; Ord. 99-1668 § 1, 1999; Amdt. 1 to Ord. 2001-925 § 1, 2002; Ord. 2002-931 § 1, 2002; Ord. BL2003-10 § 1, 2003; Amdt. 1 to Ord. BL2003-1510 § 1, 2003.

Article I. General Regulations

10.20.001 Waste services department created.

There shall be the department of waste services, which shall consist of a director of waste services and such other officers and employees organized into such divisions and other units as may be provided by ordinance

or by the orders of the director consistent therewith and approved by the mayor. (Ord. BL2025-819 § 1, 2025)

10.20.002 Responsibilities.

The department of waste services shall be responsible for:

(a) The collection and disposal of garbage and other refuse, and maintenance and operation of facilities for disposal of same.

(b) The collection of all charges for services of such collection and disposal.

(c) Such other powers and duties as may be assigned to the department by ordinance. (Ord. BL2025-819 § 1, 2025)

10.20.003 Director of waste services—Qualifications and compensation.

The head of waste services shall be the director. A permanent vacancy in the office of director shall be filled by appointment made by the mayor, subject to the civil service provisions of this Charter. He or she shall have had at least five years' experience in industry or in municipal or metropolitan departments of waste or related field. In the event of temporary vacancy in the office of director due to sickness, absence or other disability, a temporary appointment may be made by the mayor, subject to the civil service provisions of this Charter. (Ord. BL2025-819 § 1, 2025)

10.20.004 Same—Powers and duties.

The director of waste services shall have general management and control of the several divisions and units of the department. He or she shall appoint and remove, subject to the civil service provisions of article 12 of this Charter, all officers and employees of the department and shall have power to make rules and regulations for the conduct of the business of the department consistent with this Charter and the ordinances of the metropolitan government. (Ord. BL2025-819 § 1, 2025)

10.20.010 Definitions.

In this chapter, the following words and terms shall have the following meanings, unless the context otherwise requires:

"Battery box" means any container which has been used to hold battery plates and battery acid for use in automotive equipment or in the operation of gasoline engines, radios and like devices or equipment.

"Battery parts" means the lead plates or separation plates used in batteries.

"Bulky waste" means large items of solid waste such as white goods, mattresses, tires, furniture, autos or large auto parts, and other oversize wastes whose large size precludes safe or convenient loading in approved waste containers or complicates handling by normal collection, processing, or disposal methods or vehicles. Bulky waste also means a form of municipal waste materials from residential generators which are either too large or too heavy to be safely and conveniently loaded in the approved refuse disposal container or waste transportation vehicles, including but not limited to, white goods, mattresses, furniture and tires.

"Chipper residue" means wood chips produced by mechanical grinding of limbs, brush, or other woody waste.

"Collector" means a person engaged in the business of collecting solid waste for the purpose of delivery to a transfer station or final disposal point.

"Commercial-Industrial establishment" means any establishment not defined as residential in Title 17 of the Metropolitan Code of Laws.

"Commercial solid wastes" means all types of solid waste generated by stores, offices, restaurants, warehouses, and other nonmanufacturing activities, excluding domestic and industrial wastes.

"Compostable material" means solid organic waste that may be decomposed under controlled conditions by micro-organisms under aerobic or anaerobic conditions which result in a stable humus-like material free of pathogenic organisms (e.g., food wastes, yard wastes, and low moisture content wastewater sludge).

"Composting" means the process by which biological decomposition of organic solid waste is carried out under controlled aerobic conditions, and which stabilizes the organic fraction into a material which can easily and safely be stored, handled and used in an environmentally acceptable manner. The presence of anaerobic zones within the composting material will not cause the process to be classified as other than composting.

"Composting facility" means a solid waste management facility where solid waste is processed using composting technology. Processing may include physical turning, windrowing, aeration or other mechanical handling of organic matter.

"Composting pad" means the ground on which composting activities take place. May be subdivided by function, such as "mixing pad", "composting pad", "curing pad" or "storage pad". An "all-weather Composting pad is one of sufficient construction, firmness and grading so that composting equipment can manage the process during normal inclement weather, including expected rain, snow and freezing temperatures.

"Construction/demolition wastes" means wastes, other than special wastes, resulting from construction, remodeling, repair and demolition of structures and from road

building. Such wastes include but are not limited to bricks, concrete and other masonry materials, soil, rock and lumber, road spoils, rebar, paving material.

"Construction and demolition waste recycling" means the separation and reuse of construction and demolition waste that otherwise would be disposed of as waste.

"Convenience center" means any area which is staffed and fenced that has waste receptacles on site that are open to the public, when an attendant is present, to receive domestic waste, municipal solid waste and recyclable materials.

"Corrugated cardboard" means packaging material that is formed by gluing one or more fluted sheets of paperboard to one or more flat sheets of linerboard.

"Department" means the Nashville Department of Waste Services of the Metropolitan Government of Nashville and Davidson County, Tennessee.

"Director" means the director of the department.

"Downtown core area" means the area bounded as follows: Beginning at the southeast corner of Broadway and First Avenue; thence north along the east side of First Avenue to the northeast corner of the Public Square; thence west along the north side of the Public Square to the northeast corner of the Public Square and Third Avenue; thence north along the east side of Third Avenue to the northeast corner of Third Avenue and Jo Johnston Avenue; thence west along the north side of Jo Johnston Avenue to the northwest corner of Jo Johnston Avenue and Fifth Avenue; thence south along the west side of Fifth Avenue to the northwest corner of Fifth Avenue and Cedar Street; thence west along the north side of Cedar Street to the northwest corner of Cedar Street and Eighth Avenue; thence south along the west side of Eighth Avenue to the northwest corner of Eighth Avenue and Church Street; thence west along the north side of Church Street to the northwest corner of Ninth Avenue; thence south along the west side of Ninth Avenue to the northwest corner of Broadway and Ninth Avenue; thence west along the north side of Broadway to the east end of the Broadway viaduct; thence south along the west side of Tenth Avenue to the south side of Lea Avenue; thence across Lea Avenue to the east side thereof; thence north along the east side of Tenth Avenue to the southeast corner of Broadway and Tenth Avenue; and thence east along the south side of Broadway back to the beginning point.

"Electronics waste" means waste materials that include electronic components, including, without limitation, personal computers, central processing units, monitors, televisions, cathode ray tubes, printers and keyboards.

"Engage in the business of hauling waste" means to:

a. Use a vehicle to collect waste from residential or nonresidential premises, regardless of the number of times the vehicle is so used; or

b. Use a vehicle to haul waste within the limits of the Metropolitan Government of Nashville and Davison County, Tennessee more than five times during any calendar year.

"Food waste" means organic waste derived from uneaten portions of meals and trimmings from food preparation and processing activities.

"Garbage" means and includes every accumulation of both animal and vegetable matter, liquid or otherwise, that attend the preparation, use, cooking, dealing in or storage in meats, fish, foul, fruits or vegetables.

"Hazardous waste" means any chemical, compound, mixture, substance or article which may constitute a hazard to health or may cause damage to property by reason of being explosive, flammable, poisonous, corrosive, unstable, irritating, radioactive or otherwise harmful.

"Hauler" means a person engaged in the transportation of solid waste.

"Infectious waste or biohazard waste" means waste in quantities and with characteristics as determined by the director or the Tennessee Department of Health to be capable of causing an infectious disease in humans.

"Industrial wastes" means solid wastes produced in, or generated by, industrial or manufacturing processes. The term does not include commercial, domestic, mining, or hazardous waste regulated under Subtitle C of RCRA, or oil and gas waste.

"Liquid waste" means any waste material that is determined to contain free liquids as defined by Method 9095 (Paint Filter Liquids Test) as described in Test Methods for Evaluating Solid Wastes, Physical/Chemical Methods (EPA) Pub. No. SW-846 or similar publications.

"Medical facility" means any person, office, facility, or institution that generates infectious waste in the course of conducting its primary business or whose act or process results in the creation of infectious waste.

"Multifamily residence" means any dwelling, house, building, or other structure or group of structures containing more than two dwelling units, with each individual unit considered a separate residence.

"Mobile waste container" means a container used for storing or transporting waste materials to a disposal or transfer/processing point. "Mobile waste containers" include containers commonly known as dumpster and roll-off containers in excess of two cubic yards of capacity.

"One-family or two-family residence" means any dwelling, house, building or other structure wherein any individual or group of individuals live on a self-sustaining basis in one or two separate units.

"Operator" means the person or persons applying for or holding a permit, or who are otherwise responsible for the operation and maintenance of a facility.

"Owner" means any person holding a freehold interest in a premises or facility, or a person lawfully in charge of the premises or facility, or a person maintaining an ownership interest in a collection or hauling company.

"Person" means any and all persons, natural or artificial, including any individual, firm or association, business trust, partnership, corporation, joint venture, or limited liability company, municipality, and public, municipal, nonprofit or private corporation organized or existing under the laws of this state or any state, and any governmental agency or county of this state and any department, agency or instrumentality of any of the foregoing.

"Public place" means and includes parks, water or open adjacent spaces thereto and public yards, grounds and areas and all open spaces between buildings and streets and in view of such streets.

"Recovered materials" means those materials which have been diverted or removed from the solid waste stream for sale, use, reuse, or recycling, regardless of whether the materials will be further separated or processed. Such materials are not solid waste. Recovered materials shall not include yard waste.

"Recovered materials processing facility" means a facility engaged solely in the storage, processing, and resale or reuse of recovered materials. A recovered materials processing facility is not a solid waste processing facility.

"Recyclable materials" are materials that may be reused, whether or not processing is required. "Recyclable materials" include such materials as may be designated as such from time to time by the director; provided, however, that such designation must be consistent with applicable state laws and regulations.

"Recycle" means the separation and reuse of recovered materials which otherwise might be disposed of as waste.

"Recycling center" means any collection facility or system that accepts source-separated materials for resale to markets for conversion to raw materials or new products, including, without limitation, aluminum cans and scraps, tin, copper, glass, paper products, tires, plastic, bimetal and steel containers, ferrous and nonferrous metals. Provided, however, that book or clothing exchanges and ancillary recycling operations are not recycling centers.

"Residential waste" means waste generated at a one-family or two-family residence.

"Resource recovery facility" means any facility wherein takes place recovery of materials that might otherwise be disposed of as solid waste and that have not been separated at the point of generation.

"Rubbish" means and includes all non-putrescible solid waste consisting of both combustible and noncombustible waste such as paper, cardboard, glass, crockery, excelsior and similar materials. Rubbish does not include bulky waste.

"Scavenging" means uncontrolled or unauthorized removal of waste from a facility or an approved container.

"Segregated wood waste" means clean, uncontaminated wood waste acceptable to the director.

"Solid waste" means garbage, trash, refuse, abandoned material, spent material, byproducts, scrap, ash, sludge, and all discarded material including solid, liquid, semisolid, or contained gaseous material resulting from industrial, commercial, and agricultural operations, and from community activities. Solid waste includes, without limitation, recyclable material when it is discarded or when it is used in a manner constituting disposal. Solid waste does not include solid or dissolved material in domestic sewage, or solid or dissolved materials in irrigation return flows or industrial discharges that are point sources subject to permits under Section 402 of the Federal Water Pollution Control Act (compiled at 33 U.S.C. Section 1342).

"Solid waste processing" means any process that modifies the characteristics or properties of solid waste, including, but not limited to, treatment, incineration, composting, separation, grinding, shredding, and volume reduction; provided, that it does not include the grinding or shredding of landscaping or land clearing wastes or unpainted, unstained, and untreated wood into mulch or other useful products.

"Source separated materials" means recovered materials that have been diverted or removed from the solid waste stream at the point the recovered materials and the solid waste are generated. Source separated materials may include mixtures of recovered materials.

"Special waste" means waste designated by the director or the Tennessee Department of Environment and Conservation that has physical or chemical characteristics that make it necessary to handle the waste with special equipment or techniques.

"Transfer station" means a combination of structures, machinery or devices at a place or facility which receives solid waste taken from public and/or private

collection vehicles and which is placed in other transportation units for movement to another solid waste management facility.

"Waste" means garbage, rubbish and other discarded materials, including liquid, gaseous, solid and semisolid materials resulting from industrial, commercial, agricultural and domestic or residential activities, but does not include recovered materials that are managed in such a manner so as to prevent a public nuisance. The provisions of this chapter imposing duties with respect to the generation, storage, collection or transportation of waste include hazardous waste, infectious waste, and special waste, unless the context requires otherwise.

"White goods" means discarded refrigerators, ranges, washers, water heaters, and other similar domestic and commercial appliances.

"Woody material" means residuals and by-products of cutting trees, including but not limited to tree stumps, sawdust, pallets, and dimensional lumber that has not been treated chemically or with adhesives and coatings such as paint, glue, or any other visible contaminant.

"Yard trimmings" means leaves, grass clippings, brush, garden materials, tree trunks, tree stumps, holiday trees, and prunings from trees or shrubs. Yard trimmings can also include vegetative materials resulting from the use of commercial products, including but not limited to discarded flowers, potted flowers, or grave blankets that do not include plastic, metal, polystyrene foam, or other non-biodegradable material. (Ord. BL2025-819 § 3, 2025; Ord. BL2010-718 § 1, 2010)

10.20.020 Metropolitan government authority.

The Metropolitan Government of Nashville and Davidson County shall have exclusive jurisdiction and exclusive right to control the collection and disposal of Waste within the boundaries of the Metropolitan Government. (Ord. BL2010-718 § 1, 2010)

10.20.030 Director authority.

The removal and disposition of waste and recovered materials within the boundaries of the metropolitan government by any person, firm, corporation or governmental entity shall be under the exclusive jurisdiction and control of the director. (Ord. BL2010-718 § 1, 2010)

10.20.040 Adoption of rules and regulations.

The director, subject to the approval of the metropolitan mayor, may make such rules and regulations as are consistent with and necessary to the administration of the provisions of this chapter. (Ord. BL2010-718 § 1, 2010)

10.20.050 Exemptions.

A. Manufacturing firms holding permits issued by the State of Tennessee to dispose of or utilize their own wastes on plant property on April 27, 1981, shall not be subject to the provisions of this chapter.

B. Nothing in this chapter shall prevent any person who generates or produces solid waste upon property owned, leased or rented by such person from separating or causing to be separated recyclable materials there from while the solid waste is on such property and either to maintain title to such recyclable materials for his/her own use or dispose of such recyclable materials by sale or gift so long as such separation and disposition neither creates a public nuisance nor is otherwise injurious to the public health, welfare or safety.

C. Nothing in this chapter shall prevent a person from purchasing or receiving by gift recyclable materials for processing or other use separated and disposed of in strict accordance with subsection B of this section.

D. Solid waste containing recyclable materials may be transported to private intermediate disposal points, as that term is defined by the director, for removal of recyclable materials if facility capacity at the intermediate disposal point is one hundred tons per month or greater, and if the intermediate disposal point is located within the jurisdictional boundary of the metropolitan government.

E. Nothing in this chapter shall be construed to permit any person to transport or convey any solid waste generated within the jurisdictional boundary of the metropolitan government to any disposal point other than points identified on a written register maintained by the director.

F. Nothing in this chapter shall be construed to prevent the removal of special wastes; hazardous wastes; white goods; bulky wastes; fanning wastes or pesticide wastes, as those terms are defined in Rule 1200-1-7-.01 of the Tennessee Department of Environment and Conservation, from the solid waste processed for removal of recyclable materials at an intermediate disposal point. Once so removed, the disposal of such wastes shall be the responsibility of the owner and operator of the intermediate disposal point.

G. Exemptions from regulation under this chapter shall be automatically granted for persons collecting or processing five thousand pounds or less of recyclable materials in any calendar year, upon filing of an application for exemption with the director.

H. For the purpose of documenting the metropolitan government's progress in solid waste management, including source reduction, recycling and composting, all owners or operators of solid waste disposal points,

processors, haulers and collectors, including exempted persons, shall submit to the director a report of the quantities of solid waste, residue, or recyclable materials collected, transported, processed or disposed of, including the destination of recyclable materials. The frequency and detail of such reports shall be at the discretion of the director. (Ord. BL2010-718 § 1, 2010)

10.20.060 Sanitary landfill site—Extension of permit and use.

No public sanitary landfill site within the area of the metropolitan government that was used for such purposes as of October 21, 1988 may be used for such purpose beyond the time permitted by its permit authorizing such use by the Tennessee Department of Environment and Conservation, except by resolution adopted by the metropolitan council authorizing the extension of such permit and use. Such resolution of the metropolitan council shall not be effective unless adopted by twenty-one affirmative votes. (Ord. BL2010-718 § 1, 2010)

10.20.070 Information required on dump trucks—Violation and penalty.

A. All dump trucks with a capacity of two tons or more and all vehicles used in collection or transporting solid waste for a fee shall be required to have painted or affixed to the rear of the vehicle the name of the owner of the vehicle and at least one letter and two numerals at least five inches in height identifying the vehicle. The requirement herein shall apply to all vehicles using the secondary road system. An owner having more than one vehicle subject to this section shall have a different number for each.

B. A driver operating a vehicle found in violation of this section shall be fined an amount not to exceed fifty dollars for each day the violation continues. (Ord. BL2010-718 § 1, 2010)

10.20.072 Dumpster collection and requirements.

A. No person shall empty or remove any containers used for the accumulation or handling of garbage or rubbish between the hours of 11:00 p.m. and 7:00 a.m. when said containers are located within three hundred feet of any building or structure used for residential purposes. Provided, however, the prohibition of such activity shall not be applicable:

a. In the CC and CF zone districts of metropolitan government; or

b. When written permission is specifically provided by the director.

B. Any dumpster-type containers located within three hundred feet of any building or structure used for residential purposes must have a non-metal lid and must clearly display on an outside surface a label that includes the following information in letters at least one inch tall:

a. The owner of the container;

b A telephone number for the owner of the container. (Ord. BL2010-718 § 1, 2010)

10.20.075 Information required on vehicles transporting used tires—Violation and penalty.

A. All vehicles used in the collection or transporting of used tires shall be required to have painted or affixed to the side or rear of the vehicle the name and telephone number of the owner of the vehicle.

B. A driver operating a vehicle found in violation of this section shall be fined an amount not to exceed fifty dollars for each day the violation continues. (Ord. BL2010-718 § 1, 2010)

10.20.080 Disposal and placement of battery boxes and parts.

A. It is unlawful within the area of the metropolitan government for any person engaged in the manufacture, storage, handling, salvaging or sale of battery boxes or battery parts to dispose of the same at any dump in the area of the metropolitan government, public or private, or to place the same in any location where they can be readily obtained by parties desiring them for fuel purposes or otherwise.

B. This disposal or placement of battery boxes or battery parts at any dump within the area of the metropolitan government, public or private, or in any other public location or place of such character as to make such battery boxes or battery parts accessible to the public, is declared to be a public health nuisance. (Ord. BL2010-718 § 1, 2010)

10.20.085 Brush collection.

A. Brush collection shall be in accordance with regulations promulgated by the director. No other types of waste in addition to yard waste will be collected by the metropolitan government or its brush collection contractors; nor will any solid waste or non-uniform yard waste (including logs) be moved or handled to allow collection of other yard waste in the same stockpile.

B. The brush collection service will only collect stockpiles of yard waste left at a location at the curb or the edge of the road or street or other locations approved by the director, provided, however, collection by the brush collection service may be in alleys when such alleys are utilized for collection of solid waste.

C. No yard waste will be collected from private property or in an alley, except as otherwise provided in this section.

D. Persons operating tree surgery businesses or other commercial ventures which generate yard waste shall remove all debris generated by their procedures and dispose of that debris according to regulations promulgated by the director.

E. Persons collecting, processing or disposing of yard waste in lieu of using the brush collection service contemplated in this section shall comply with regulations promulgated by the director.

F. The director shall develop rules and regulations as may be necessary to aid in the administration of this provision and shall have the authority to suspend any or all of the chipper service rules in an emergency.

G. No yard waste shall be placed for collection in any area where it can be washed into a storm sewer, catch basin or stream.

H. Loose yard waste may be placed in bags for storage and collection. Bags used for storage and collection must be bio-degradable and approved by the director. Yard waste placed in bags that are not bio-degradable shall not be collected by the brush collection service.

I. The department may maintain and operate a composting and processing facility for the purpose of composting and processing yard waste. End products may be utilized by the metropolitan government, sold by competitive bid or made available to businesses located in Davidson County and to the general public.

J. The director may cause the department to produce and distribute educational materials to promote and encourage recycling, "home" composting and other environmentally sound alternatives for the disposal of yard waste. (Ord. BL2010-718 § 1, 2010)

10.20.090 Enforcement/right of entry.

A. The Director shall designate environmental enforcement officers to inspect, investigate and enforce the provisions of this chapter. A violation of any provision of this chapter shall be subject to a fine of not more than fifty dollars for each day the violation continues.

B. The director shall enforce the provisions of this chapter and he/she or his/her duly authorized enforcement officers may enter with the consent of the owner or occupant or with a valid search warrant, and upon presentation of proper identification, any building, structure or premises within the area or jurisdiction of the metropolitan government to perform any duty or responsibility imposed upon him/her by this chapter.

10.20.095 Yard waste, corrugated cardboard and electronic waste banned from solid waste collection.

A. Effective July 1, 2011, yard waste shall not be placed within solid waste containers nor collected and disposed with solid waste.

B. Effective July 1, 2013, corrugated cardboard and corrugated cardboard boxes shall not be placed in solid waste containers nor collected and disposed with solid waste; provided, however, that the following types of corrugated cardboard are not banned:

1. Waxed cardboard;

2. Greasy, oily, painted or contaminated cardboard;

3. Cardboard adhered to foil, plastic or Styrofoam;

4. Single layer "boxboard" such as but not limited to cereal boxes, tissue boxes, or shoe boxes.

C. Effective July 1, 2015, no electronics waste as defined in this chapter shall be placed in solid waste containers nor collected and disposed with solid waste. (Ord. BL2010-718 § 1, 2010)

10.20.100 Private collection permits.

A. Any person who for a fee collects garbage, rubbish, construction and demolition waste, or industrial waste within a mobile waste container within the limits of the metropolitan government or hauls or transports garbage, rubbish, construction and demolition waste or industrial waste by means of a vehicle on any public highway, road, street or alley within the limits of the metropolitan government shall obtain each year a private collection permit from the department for each such vehicle or mobile waste container. Vehicles and mobile waste containers owned and operated by the department shall not be required to obtain private collection permits. The director shall determine the costs to be incurred by the department in administering the permitting program contemplated by this section, including the cost of enforcement, and charge fees for permit issuance that are sufficient to allow the department to recover such costs in full. The fees for permit issuance shall be approved by the metropolitan council by resolution. A person seeking a permit under this section shall submit an application to the department on a form approved by the director and specifying:

1. The person's name, home address, business address and telephone numbers;

2. A list and full description by make and model of all equipment that the person will or may use in Davidson County for any purpose described in this section;

3. Proof of liability insurance issued by a company authorized to do business in Tennessee in the amounts required by the metropolitan director of insurance;

4. A plan for the provision of recycling services for the person's customers per section 10.20.105.

5. Such other and further information as the director may require.

B. Upon verification of the information contained in the application and payment of the required fee, the director shall issue the private collection permit.

C. The private collection permit contemplated in this section shall be effective for one year from the date of its issuance by the director.

D. The director may impose conditions upon the issuing of a permit reasonably calculated to eliminate excessive noise, scattering of dust, dirt and other materials and similar nuisances, compel adherence to the provisions of this chapter and prevent obstruction of public streets and interference with traffic.

E. The director may revoke a permit granted under this section if the permittee violates any provision of the chapter or the terms of the permit. A person whose permit has been revoked may apply for reissuance of the permit. A permit shall be reissued under this section only upon such terms as the director may reasonably require.

F. A private collection permit required and issued under this section shall be affixed to the driver's side windshield of the permitted vehicle, or to the front of the permitted mobile waste container. (Ord. BL2013-591 § 1, 2013; Amdt. 2 to Ord. BL2010-718 § 1; Ord. BL2010-718 § 1, 2010)

10.20.105 Recycling services to be made available by waste haulers.

A. Effective July 1, 2013, each person providing solid waste collection services within the jurisdictional area of the metropolitan government shall offer recycling services and may charge a reasonable fee for the provision of recycling services.

B. Prior to becoming eligible for a private collection permit pursuant to Metropolitan Code of Laws section 10.20.100, the applicant shall submit a plan to the director for the provision of recycling services. The plan shall contain:

1. A description of the materials which the applicant will accept for recycling;

2. A description of any requirements which the applicant will impose on those using the recycling service including but not limited to:

i. The type of container which will be used for recycling and whether the container must be purchased from the applicant and the cost therefore;

ii. The fee to be imposed by the applicant for the provision of the recycling service;

iii. The minimum level and frequency of service; and

iv. Any other information the director deems necessary.

C. The director shall approve the plan if the specified fees, requirements and levels of service are, in his/her opinion, reasonable and consistent with other recycling services within Davidson County. The applicant may submit a request to amend an existing recycling plan at any time. The application to amend an existing plan shall specify the requested amendment and the reason such amendment should be granted. The director shall consider the proposed amendment in accordance with the standards set forth in this subsection. (Ord. BL2010-718 § 1, 2010)

10.20.110 Container requirements, ownership and use; scavenging.

A. At all times, it shall be the duty of the owner of every premises where garbage is created or accumulated to keep or cause to be kept a sufficient number of containers approved by the director for the deposit of garbage and recyclables generated on the premises. Lids or covers must be provided for all such containers and they shall be kept tightly closed at all times other than when garbage or recyclables are being deposited therein or removed therefrom. Containers may be placed for collection along public alleys, streets and sidewalks only between the hours of 7:00 p.m. on the day prior to the scheduled collection day and 7:00 p.m. on the scheduled collection day. At all other times, containers must be stored at a location at the rear or side of the premises or at a location approved by the Director so as to not be on a public street or within the public right-of-way.

B. No person other than the owner, an authorized employee of the metropolitan government or one of its contractors, or a duly licensed collector or hauler shall interfere with a container used for the accumulation or handling of garbage or rubbish or recyclables or remove any such container from the location where it shall have been placed by the owner, nor remove the contents from any such container. It is unlawful for any person to deposit or permit or suffer its agents, servants or employees to deposit household or commercial wastes in or about the antilitter cans or like receptacles provided by the metropolitan government in various public places in the community.

C. Containers supplied by the metropolitan government for the storage and collection of garbage, rubbish and recyclables shall remain the property of the metropolitan government. Containers supplied by the

department must be used for all waste collection services provided by the department or its collection contractors. The owner of a premises furnished a container by the department shall keep the container at the premises and in good repair. In the event a container originally furnished by the department is lost, stolen or damaged beyond repair, the owner shall replace, at his/her sole cost, such container with another compatible with the department's collection equipment and approved by the director. The department shall make replacement waste containers available for purchase at department's cost. The director shall issue regulations to aid in the administration of this section.

D. No person shall scavenge waste or recyclable materials from any container or facility within the limits of the metropolitan government. (Ord. BL2025-819 § 4, 2025; Amdt. 1 to Ord. BL2018-1406 § 1, 2019; Ord. BL2018-1406 § 1, 2019; Ord. BL2010-718 § 1, 2010)

10.20.120 Nuisance declared when.

It is unlawful for any person to keep, cause to be kept, or allow the keeping of garbage or rubbish on any premises within the area of the metropolitan government in such manner that it will become offensive or deleterious to health or likely to cause disease, and the same is declared a public nuisance. (Ord. BL2010-718 § 1, 2010)

10.20.130 No dumping permitted.

A. It is unlawful for any person to dispose of or cause to be disposed any waste upon any property other than a disposal facility designated and approved by the metropolitan government.

B. It is unlawful for any person to dispose of or cause to be disposed any waste in any private receptacle other than the person's own private receptacle or unless authorized to do so by the owner of the private receptacle.

C. This section shall not apply to any private landfill. (Ord. BL2025-819 § 5, 2025; Ord. BL2010-718 § 1, 2010)

Article II. Urban Services District—Waste Collection and Disposal

10.20.200 Director of waste services authority.

The removal and disposition of garbage, rubbish, and recovered materials from premises in the urban services district shall be under the jurisdiction of the director. (Ord. BL2025-819 § 2, 2025; Ord. BL2010-718 § 1, 2010)

10.20.220 Collection requirements.

The department shall only pick up and dispose of garbage and rubbish, as well as recyclables, in the urban services district which has been placed in an adjacent alley, on an adjacent curb or on the side of a public road or street at locations approved by the department and subject to the following additional limitations:

A. *One-family and two-family residences.* The department shall collect and dispose of garbage and rubbish once per week from one-family and two-family residences and the director shall determine by regulation the maximum amount thereof it will pick up each time. All garbage and rubbish shall be placed in containers approved by the director and no container's contents shall weigh more than fifty pounds; provided, however, these limits shall not apply if the department or other department furnishes a container with greater capacity. Further, such residents shall comply with waste container capacity and weight limitations established by the director. Any excess garbage or rubbish shall be disposed of by and at the expense of the owner. The director may specify by regulation specific circumstances under which the requirements of this section may be waived.

B. *Multifamily residences.* The department shall collect and dispose of garbage and rubbish once per week from multifamily residences and shall determine the maximum amount thereof it will pick up each time. All garbage and rubbish shall be placed in containers approved by the director, who shall also determine maximum allowable full container weight. Any excess garbage or rubbish shall be disposed of by and at the expense of the owner.

C. *Commercial-industrial establishment.* The department shall collect and dispose of garbage and rubbish once per week from commercial-industrial establishments outside the downtown core area and shall determine the maximum amount thereof it will pick up each time. Any excess garbage and rubbish shall be disposed of by and at the expense of the owner.

D. *Commercial-industrial establishment, downtown core area.* The department shall collect and dispose of not more than 192 gallons per day of garbage and rubbish from commercial-industrial establishments in the downtown core area each day of the week except Sunday. All such containers must be uniform and must be approved by the director, who shall have the authority to waive the uniformity requirement under appropriate circumstances. Any garbage or rubbish exceeding 192 gallons per day shall be disposed of by and at the expense of the owner.

E. *Back yard pickup.* Notwithstanding any other provision of this section, the department shall collect and dispose of garbage and rubbish from the back yard of any one-family or two-family residence upon request for such service by the owner and upon the payment of a fee, such fee to be the actual cost for providing such service, including the cost of the billing and collection of such fee, as determined by the department and approved by the metropolitan council by resolution. The cost for this service shall be uniform throughout the urban services district. Any contract for collection of garbage entered into with a private contractor shall provide for this additional service and shall enumerate the uniform fee for such service. Collectors employed by the department shall not enter houses or stores for the collection of garbage or rubbish. Every owner receiving backyard service shall provide a safe and convenient entrance to and through his/her premises for the purpose of collecting garbage. Where yards are fenced, a gate not less than 40 inches wide and otherwise suitable for passage of collectors and their equipment shall be left open to provide a safe and convenient entrance to and through the premises; provided, that the director may waive the requirements of this section in cases of hardship. Containers shall be placed where collectors may pick up and return them without attack from animals and reasonably separated from items not intended to be collected such that collectors may readily distinguish the two. The director shall by regulation provide for free back yard collection service from one-family and two-family residences for persons who require such service on account of documented disability or other evidence of hardship.

F. The department shall collect and dispose of leaves from one-family and two-family residences within the urban services district subject to the limitations contained herein.

1. Leaves shall only be picked up if they are properly placed in biodegradable paper bags approved by the director.

2. Leaf collection shall be a seasonal service and the frequency and duration of the service shall be determined by the director.

3. Leaves collected by the department shall not be disposed of in sanitary landfills.

G. The department may collect and dispose of excess garbage and rubbish within the urban services district upon request for such service by the owner and payment of a fee, such fee to be the actual cost for providing such service, including the cost of providing containers and the cost of billing and collection of said fee as determined by the department and approved by the metropolitan council by resolution. Said fee shall be determined annually and published by the director and shall be paid in advance of provision of the service. The director shall develop such rules and regulations as may be necessary to aid in the administration of this section. All fees collected pursuant to this subsection shall be dedicated for use by the department for recycling services and/or recycling education and promotion. (Ord. BL2025-819 § 6, 2025; Ord. BL2013-433 § 1, 2013; Amdts. 1, 2 to Ord. BL2010-718 §§ 1—3; Ord. BL2010-718 § 1, 2010)

10.20.240 Hazardous, pathogenic and radioactive waste.

A. Hazardous waste. All Hazardous waste shall be disposed of by the entity generating such waste under such methods and conditions as shall be approved by the director. Any such entity may apply for a special permit as a private collector or may dispose of hazardous waste by licensed private collectors.

B. Pathogenic and radioactive waste.

1. All pathogenic and radioactive waste shall be disposed of by the entity generating such waste under such conditions as shall be approved by the metropolitan health department and the state department of environment and conservation.

2. All pathological waste from physician's clinics, dental clinics, blood banks and medical or microbiological laboratories shall be separated from other waste and placed in durable disposable bags that can be tied and sealed when full. The bags shall be stored in metal containers with tight-fitting lids while in the process of being filled. Containers shall be adequately labeled and kept in places restricted from access by the public. Needles shall be separated from disposable syringes by breaking them off at the hub immediately after use. These materials shall only be placed at the collection point on the day they are to be collected. Storage, collection and disposal of pathological waste shall be in accordance with regulations of the metropolitan health department and the state department of environment and conservation. (Ord. BL2010-718 § 1, 2010)

10.20.250 Building debris—Responsibility for removal.

The owner of any premises that generates building debris such as scrap lumber, plaster, roofing, concrete, brickbats and sanding dust resulting from the construction, repair, remodeling or demolition of any building or appurtenances shall be responsible for the private collection and disposal of such material. (Ord. BL2010-718 § 1, 2010)

10.20.260 Public trash receptacles—Purpose—Specifications.

A. In order to promote the general health of the inhabitants and to aid and assist in cleaning and keeping clean the streets and sidewalks of the urban services district, the director is authorized to have placed, on the sidewalks of the urban services district, receptacles for garbage and rubbish, which receptacles shall be of a uniform design and approved by the director. The receptacles shall be so located on the sidewalks as not to interfere with their free use by pedestrians, at places to be designated by the director. No private person may place a receptacle for garbage and rubbish on a sidewalk in the urban service district for a similar purpose except as provided in this section.

B. The metropolitan mayor is authorized to enter into a contract, under the most favorable terms to the metropolitan government which he/she can secure, for placing and maintaining on the streets the receptacles authorized in this section, and he/she is authorized to allow the painting on such receptacles of advertisements of any legitimate business under the laws of the United States and this state and ordinances of the metropolitan government. The contract shall contain a reservation that same may be canceled by action of the metropolitan council upon thirty days' written notice at any time after six months from the date of the contract, without further obligation or liability on the part of the metropolitan government.

C. Any person entering into a contract with the metropolitan government for furnishing and maintaining the receptacles authorized in this section obtain a surety bond with a penal sum of not less than one hundred thousand dollars, naming the metropolitan government as obligee, issued by a regularly incorporated surety or indemnity company authorized to do business in the state, and conditioned that such person shall faithfully perform all the conditions and requirements of the contract and shall save the metropolitan government harmless from all liabilities arising out of or in any way connected with the existence of such receptacles upon the streets. (Ord. BL2010-718 § 1, 2010)

Article III. Disposal Facilities, Fees and Charges

10.20.300 Sanitary landfills established—Fee required.

The metropolitan government may establish sanitary landfills or other places of disposal of Waste as maybe necessary. Except as provided herein, no person shall use or be permitted to use any sanitary landfill or other place of waste disposal except upon the payment of a fee. The metropolitan council may by resolution establish or adjust fees for any persons using metropolitan sanitary landfills, incinerators or other collection stations, provided nothing herein shall prohibit the establishment of a private landfill by any private developer, provided such landfill is approved by the metropolitan health department and the appropriate agencies of the State of Tennessee. (Ord. BL2010-718 § 1, 2010)

10.20.310 Tip fees generally.

Every Person disposing of solid waste at a sanitary landfill, incinerator or collection station owned or operated by the metropolitan government shall pay a tip fee of six dollars per cubic yard or twenty-four dollars per ton of loose or compacted waste unless a different fee is specified in this chapter. The tip fee specified in this section shall be reduced to five dollars per cubic yard or twenty dollars per ton if the person generating or producing such waste separates recyclable materials from the waste before the waste is collected or hauled from the premises on which it is generated or produced and the separation does not create a public nuisance or cause injury to the public health, safety or welfare and:

A. For waste other than construction and demolition waste, the separation results in a minimum of eighty percent of the waste generated or produced by that person being diverted to recycling.

B. The separated recycled materials are reused by the separating person or disposed of by sale or gift for reuse. (Ord. BL2010-718 § 1, 2010)

10.20.330 Tip fee—Wood waste, chipper residue and yard waste.

A. Every person disposing of wood waste at a facility owned or operated by the metropolitan government shall pay to the metropolitan government a tip fee.

B. The director shall determine the costs incurred by the department in operating said wood waste facility that are sufficient to allow the department to recover such costs in full. The schedule of fees and charges in effect at any time shall be placed on file in the office of the metropolitan clerk. (Ord. BL2010-718 § 1, 2010)

10.20.340 Tip fees—Increased for out-of-county users.

Tip fees and charges imposed in this chapter shall be doubled when waste or refuse is transported to a disposal or collection site in a vehicle bearing a license tag issued by a county other than Davidson County unless the owner of the vehicle presents proof of ownership of single or two-family residential real property in Davidson County. For purposes of this section, proof

of ownership shall include a copy of a deed to the real property or a property tax bill issued by the metropolitan trustee for the previous tax year in the name of the owner. The provisions of this ordinance shall not apply to any fee charged by the department of waste services for the disposal of used tires. (Ord. BL2025-819 § 2, 2025; Amdt. 1 to Ord. BL2011-859 § 1, 2011; Ord. BL2011-859 § 1, 2011; Ord. BL2010-718 § 1, 2010)

10.20.350 Vehicle requirements—Dumping times.

Any vehicle presented for dumping at a facility owned or operated by the metropolitan government shall be enclosed at the sides and back or equipped with a tarpaulin or other method established by the director so as reasonably to avoid spilling garbage or waste, disseminating odors, and attracting insects, and the director may establish such times when such vehicles may be presented for dumping. (Ord. BL2010-718 § 1, 2010)

10.20.360 Solid waste generator fees.

A. In addition to tip fees otherwise due, every person collecting, hauling or disposing of any waste, other than construction and demolition waste disposed of at a class III or class IV disposal facility permitted by the Tennessee Department of Environment and Conservation, originating or produced in Davidson County shall pay to the metropolitan government a solid waste generator fee of six dollars per ton of such waste. Persons collecting, hauling or disposing of such waste shall be jointly and severally liable for the payment of the fee; provided, however, that only one fee shall be owed on each ton of waste. The solid waste generator fee shall not be owed on recovered materials, yard waste or waste hauled, collected or disposed of directly by the metropolitan government or persons under contract with the metropolitan government to haul, collect or dispose of waste. The solid waste generator fee applicable to construction and demolition waste disposed of at a class III or class IV disposal facility permitted by the Tennessee Department of Environment and Conservation shall be as specified in subsection B. of this section.

B. In addition to tip fees otherwise due, any person collecting, hauling, receiving, processing or disposing of any construction and demolition waste in Davidson County shall, if and only if the disposal site is a class III or class IV disposal facility permitted by the Tennessee Department of Environmental Conservation, pay to the metropolitan government a solid waste generator fee equal to one dollar per cubic yard of construction and demolition waste accepted at such facility. The maximum capacity, in cubic yards, of every vehicle delivering a load of construction and demolition waste to a disposal site covered by this subsection shall be calculated, and the fee owed for that load shall be the product of that capacity and one dollar. Persons collecting, hauling, receiving, processing or disposing of such waste shall be jointly and severally liable for the payment of the fee; provided, however, that only one fee shall be owed on each cubic yard of waste. The waste generator fee shall not be owed on recovered materials, yard waste or waste hauled, collected or disposed of directly by the metropolitan government or persons under contract with the metropolitan government to haul, collect or dispose of waste.

C. [Reserved.] (Ord. BL2018-1057 § 1, 2018; Amdt. 1 to Ord. BL2013-591 § 2, 2013; Ord. BL2013-591 §§ 2—4, 2013; Ord. BL2010-718 § 1, 2010)

10.20.365 Convenience center and special waste fees.

Any person disposing of waste at a Convenience Center operated by the Metropolitan Government shall pay a fee ("Convenience Center Disposal Fee"). The Convenience Center Disposal Fee shall be as follows:

Standard sized pickup trucks	$6.00 per load
Standard sized pickup trucks with rails	$12.00 per load
Small trailers	$6.00 per load
Large trailers	$12.00 per load
Tires with rims	$4.00 each

The director shall determine the costs incurred by the department for the disposal of waste not listed above, including special waste such as, without limitation, gasoline tanks and used tires, and other waste collected at the convenience centers. The director shall establish, and revise as necessary, a schedule of fees and charges applicable to collection and disposal to such waste that are sufficient to allow the department to recover its costs in full. The schedule of fees and charges in effect at any time shall be placed on file in the office of the metropolitan clerk. (Ord. BL2010-718 § 1, 2010)

10.20.370 Collection of fees.

The director shall be authorized to promulgate reasonable rules and regulations governing the collection of fees specified in this chapter. The director shall also make reasonable rules and regulations as shall be necessary to carry out the inspection, supervision and enforcement of such fees. All funds collected under this chapter shall be placed in the solid waste fund. (Ord. BL2010-718 § 1, 2010)

10.20.380 Providers of solid waste disposal service—Fees—Other rules.

A. Any person providing temporary or permanent disposal of solid waste pursuant to this chapter shall accept waste from private, noncommercial, standard pickup trucks at a fee equal to the fee charged at convenience centers operated by the metropolitan government.

B. In addition to the fee permitted in subsection A of this section, any person providing temporary or permanent disposal of waste pursuant to this chapter may charge passenger cars or private, noncommercial standard pickup trucks the solid waste generator fee authorized in this chapter. Nothing in this section shall relieve such person of the obligation to remit the appropriate solid waste generator fee to the metropolitan government. (Ord. BL2025-819 § 7, 2025; Ord. BL2010-718 § 1, 2010)

10.20.390 Calculation of fees.

Wherever in this chapter fees are set on an alternative basis of weight or volume, the director shall, by regulation, establish which method shall be used for calculation thereof. Wherever in this chapter such fees are not set on an alternative basis of weight or volume, the director may, by regulation, establish an alternative calculation method based on one ton equaling four cubic yards. (Ord. BL2010-718 § 1, 2010)

10.20.395 Periodic reports.

A. Annual Report. Every person collecting, hauling, disposing of waste and recovered materials, and/or any person providing permanent or temporary disposal of waste, and/or any person processing waste covered by this article, shall provide the director an annual report stating the amount of tons of waste collected, hauled, disposed and/or processed by said person, as a condition of this permitted activity. The director may require said person to submit said report through a certified independent audit firm.

B. Quarterly Recycling Performance Report. Each quarter, the director shall submit a written performance report to the council regarding solid waste disposal, recycling, and compost performance. The quarterly written performance report shall address the following:

1. Operations, and cost monitoring and management metrics, including, at a minimum, the following data for the preceding quarter, stated in comparison to comparable data for the quarter prior to the immediately preceding quarter:

a. The number of active convenience center customers;

b. Total waste tonnage;

c. Total recycling tonnage;

d. Total cost per ton of trash collected; and

e. Total cost per ton of recycling collected.

2. Recycling. The report must also include information on recycling collected and processed:

a. The percentage of recycling collected that was rejected as contaminated;

b. The categories of recycled materials;

c. The quantity, in tons, of each category processed; and

d. The destination(s) of each category of recycle material - state and end product.

3. Compost. The report must also include the tonnage of compost collected through the current compost pilot program or any successor program under Metro's responsibility. (Amdt. 1 to Ord. BL2025-819 § 8, 2025; Ord. BL2025-819 § 8, 2025; Ord. BL2010-718 § 1, 2010)

Article IV. Waste Management Plan Report

10.20.400 Waste management plan report.

A. The department shall file with the metropolitan council an annual report detailing progress on the implementation of the waste management plan of the metropolitan government. The department shall compile such information not only from the metropolitan government departments and agencies, but also request and compile from state and federal agencies to the extent necessary and possible. All agencies and contractors of the metropolitan government shall provide all necessary information to the department to assist in the creation of the annual report on the waste management plan.

B. The annual report shall be annually provided to the metropolitan council. Notices of the availability of the report will be sent to members of the media and known local environmental groups. A copy of the report shall also be placed on file in the office of the metropolitan clerk.

C. The annual report shall follow the guidelines approved by the Tennessee Department of Environment and Conservation regarding Annual Progress Reports (T.C.A. 68-211-815(b). In addition to the information required by T.C.A. 68-211-815(b), the department shall provide the following additional information:

1. The percentage of households in the urban services district participating in curbside recycling annually.

2. The number and type of environmental violations resulting in enforcement actions taken by the department.

3. The number and type of contract violations by contractors providing trash or recycling collection for the metropolitan government.

4. The number and percent of employees who are minorities/women for each contractor of the metropolitan government involved in the plan.

5. The number and percent of minority/women owned business enterprises that have contractual relationships with the waste management plan. (Ord. BL2010-718 § 1, 2010)

Article V. Waste Management Development Review Fee*

10.20.500 Waste management development review fee.

The director shall have the authority to establish, and shall have the authority to revise as necessary, a schedule of fees and charges applicable to that department's review and processing of building permit applications, relating to waste management, to recover its costs in full for same. The schedule of fees and charges in effect at any time shall be placed on file in the office of the metropolitan clerk. As an initial example of this, starting on May 1, 2021, but subject to the authority of the director to adjust these fees to recover any increase in costs, in future, all persons applying for a commercial construction permit, residential multifamily construction permit, and demolition permit shall pay a development review fee based on the schedule below:

Total Project Valuation	Fee
$50,000.00—500,000.00	$35.00
$500,000.01—$3,000,000.00	$150.00
$3,000,000.01—$20,000,000.00	$400.00
$20,000,000.01 +	$1,000.00

For the purposes of this section, "commercial construction" and "demolition permit" shall have a meaning consistent with the use of those terms in Chapter 16.28 of this Code, and "residential multifamily" shall mean residential construction other than one-family and two-family residential construction and townhouses. The director shall determine the costs incurred by the department for reviewing and processing construction and demolition permit applications for permit types and project values not listed above. In no case shall these fees be subject to refund even if there is not a subsequent building permit issued. (Ord. BL2021-677 § 1, 2021)

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*Editor's note—Prior to reenactment by Ord. BL2021-677, Ord. BL2013-591, § 4, passed Dec. 17, 2013, repealed § 10.20.500, which pertained to construction/demolition recycling facility and derived from Amdt. 1 to Ord. BL2010-718 § 2.

Chapter 10.24

LITTERING*

Sections:

10.24.010	**Definitions.**
10.24.020	**Posting notices prohibited when.**
10.24.030	**Handbills—Distribution in public places.**
10.24.040	**Handbills—Distribution on vehicles.**
10.24.050	**Litter on business premises—Responsibilities of owners.**
10.24.060	**Litter on public places—Responsibilities of citizens.**
10.24.070	**Litter on private property—Responsibilities of owners.**
10.24.080	**Litter on occupied private property.**
10.24.090	**Notice to remove litter—Failure to comply.**
10.24.100	**Litter permitted in designated places only.**
10.24.110	**Proper placement in receptacles required.**
10.24.120	**Litter in parks.**
10.24.130	**Litter in bodies of water.**
10.24.140	**Litter on vacant lots.**
10.24.150	**Litter from vehicles—Liability of drivers.**
10.24.160	**Litter from vehicle loads and tires.**
10.24.170	**Litter from aircraft.**
10.24.180	**Distribution restricted to daylight hours.**
10.24.190	**Penalty for violation.**

10.24.010 Definitions.

For the purpose of this chapter, the following terms, phrases, words and their derivations shall have the meaning given in this section. When not inconsistent with the context, words used in the present tense include the future, words used in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.

"Aircraft" means any contrivance now known or hereafter invented, used or designated for navigation or for flight in the air. The word "aircraft" shall include helicopters and lighter-than-air dirigibles and balloons.

"Authorized private receptacle" means a litter storage and collection receptacle as required and authorized in Article III of Chapter 10.20 (refuse collection system ordinance).

"Commercial handbill" means any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, paper, booklet, or any other printed or otherwise reproduced original or copies of any matter of literature:

1. Which advertises for sale any merchandise, product, commodity or thing;

2. Which directs attention to any business or mercantile or commercial establishment, or other activity, for the purpose of either directly or indirectly promoting the interest thereof by sales;

3. Which directs attention to or advertises any meeting, theatrical performance, exhibition, or event of any kind, for which an admission fee is charged for the purpose of private gain or profit;

4. Which, while containing reading matter other than advertising matter, is predominantly and essentially an advertisement, and is distributed or circulated for advertising purposes, or for the private benefit and gain of any person so engaged as advertiser or distributor.

"Garbage" means putrescible animal and vegetable wastes resulting from the handling, preparation, cooking and consumption of food.

"Litter" means "garbage," "refuse" and "rubbish" as defined in this section and all other waste material which, if thrown or deposited as herein prohibited, tends to create a danger to public health, safety and welfare. "Litter" also means unsolicited non-biodegradable promotional materials, including but not limited to, plastic cups, bottles, and other similar containers.

"Newspaper" means any newspaper of general circulation as defined by general law, any newspaper duly entered with the Post Office Department of the United States, in accordance with federal statute or regulation, and any newspaper filed and recorded with any recording officer as provided by general law; and, in addition thereto, shall mean and include any periodical or current magazine regularly published with not less than four issues per year, and sold or distributed to the public.

"Noncommercial handbill" means any printed or written matter, any sample, or device, dodger, circular, leaflet, pamphlet, newspaper, magazine, paper, booklet, or any other printed or otherwise reproduced original or copies of any matter of literature not included in the definitions of a commercial handbill or newspaper as set out in this section.

"Park" means a park, reservation, playground, beach, recreation center or any other public area in the area of

*__State law reference—__Litter Prevention and Control Law, T.C.A. § 4-7-301 et seq.

the metropolitan government, owned or used by the area of the metropolitan government and devoted to active or passive recreation.

"Person" means any person, firm, partnership, association, corporation, company or organization of any kind.

"Private premises" means any dwelling, house, building or other structure, designed or used either wholly or in part for private residential purposes, whether inhabited or temporarily or continuously uninhabited or vacant, and shall include any yard, grounds, walk, driveway, porch, steps, vestibule or mailbox belonging or appurtenant to such dwelling, house, building or other structure.

"Public place" means any and all streets, sidewalks, boulevards, alleys or other public ways and any and all public parks, squares, spaces, grounds, and buildings.

"Refuse" means all putrescible and nonputrescible solid wastes (except body wastes), including garbage, rubbish, ashes, street cleanings, dead animals, abandoned automobiles, and solid market and industrial wastes.

"Rubbish" means nonputrescible solid wastes consisting of both combustible and noncombustible wastes, such as paper, wrappings, cigarettes, cardboard, tin cans, yard clippings, leaves, wood, glass, bedding, crockery and similar materials.

"Vehicle" means every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, including devices used exclusively upon stationary rails or tracks. (Ord. BL2024-509 § 1, 2024; Ord. BL2014-922 § 1, 2014; Ord. 90-1339 § 1 (36-1), 1990; prior code § 36-1-3)

10.24.020 Posting notices prohibited when.

No person shall post or affix any notice, poster or other paper or device, calculated to attract the attention of the public to any public lamppost, public utility pole or public shade tree, or upon any public structure or building, except as may be authorized or required by law. (Prior code § 36-1-17)

10.24.030 Handbills—Distribution in public places.

No person shall throw or deposit any commercial or noncommercial handbill in or upon any sidewalk, street or other public place within the area of metropolitan government. Nor shall any person hand out or distribute or sell any commercial handbill in any public place. Provided, however, that it is not unlawful on any sidewalk, street, or other public place within the area of metropolitan government for any person to hand out or distribute, without charge to the receiver thereof, any commercial or noncommercial handbill to any person willing to accept it. (Ord. 90-1339 § 1 (36-2), 1990; prior code § 36-1-12)

10.24.040 Handbills—Distribution on vehicles.

No person shall throw or deposit any commercial or noncommercial handbill in or upon any vehicle. Provided, however, that it is not unlawful in any public place for a person to hand out or distribute to the receiver thereof, a commercial or noncommercial handbill to any occupant of a vehicle who is willing to accept it. (Ord. 90-1339 § 1 (36-3), 1990; prior code § 36-1-13)

10.24.050 Litter on business premises—Responsibilities of owners.

No person owning or occupying a place of business shall sweep into or deposit in any gutter, street or other public place within the area of metropolitan government the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Persons owning or occupying places of business within the area of metropolitan government shall keep the sidewalk in front of their business premises free of litter. (Prior code § 36-1-7)

10.24.060 Litter on public places—Responsibilities of citizens.

No person shall sweep into or deposit in any gutter, street, or any other public place within the area of metropolitan government, the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Persons owning or occupying property shall keep the sidewalk in front of their premises free of litter. (Prior code § 36-1-6)

10.24.070 Litter on private property—Responsibilities of owners.

The owner or person in control of any private property shall at all times maintain the premises free of litter. Provided, however, that this section shall not prohibit the storage of litter in authorized private receptacles for collection. (Prior code § 36-1-19)

10.24.080 Litter on occupied private property.

A. No person shall throw or deposit litter on any occupied private property within the area of metropolitan government, whether owned by such person or not, except that the owner or person in control of private property may maintain authorized private receptacles for collection in such a manner that litter will be prevented from being carried or deposited by the elements upon any street, sidewalk or other public place or upon any private property.

B. No person shall throw or deposit non-biodegradable promotional materials on any residential property within the area of the metropolitan government without the permission of the property owner or lawful resident. (Ord. BL2014-922 § 2, 2014; prior code § 36-1-18)

10.24.090 Notice to remove litter—Failure to comply.

A. Notice to Remove Litter. The metropolitan director of health, or his duly authorized agent, is authorized and empowered to notify the owner of any open or vacant private property within the area of metropolitan government or the agent of such owner to properly dispose of litter located on such owner's property which is dangerous to public health, safety or welfare. Such notice shall be by registered mail, addressed to the owner at his last known address.

B. Action Upon Noncompliance. Upon the failure, neglect or refusal of any owner or agent so notified, to properly dispose of litter dangerous to the public health, safety or welfare within ten days after receipt of written notice provided for in subsection A of this section, or within fifteen days after the date of such notice the owner of the property shall be deemed in violation of this section and subject to fine as provided herein. (Prior code § 36-1-21)

10.24.100 Litter permitted in designated places only.

No person shall throw or deposit litter in or upon any street, sidewalk or other public place within the area of metropolitan government except in public receptacles, in authorized private receptacles for collection, or in official metropolitan landfills or dumps. (Prior code § 36-1-4)

10.24.110 Proper placement in receptacles required.

Persons placing litter in public receptacles or in authorized private receptacles shall do so in such a manner as to prevent it from being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property. (Prior code § 36-1-5)

10.24.120 Litter in parks.

No person shall throw or deposit litter in any park within the area of metropolitan government except in public receptacles and in such a manner that the litter will be prevented from being carried or deposited by the elements upon any part of the park or upon any street or other public place. Where public receptacles are not provided, all such litter shall be carried away from the park by the person responsible for its presence and properly disposed of elsewhere as provided herein. (Prior code § 36-1-10)

10.24.130 Litter in bodies of water.

No person shall throw or deposit litter in any fountain, pond, lake, stream, bay or any other body of water in a park or elsewhere within the area of metropolitan government. (Prior code § 36-1-11)

10.24.140 Litter on vacant lots.

No person shall throw or deposit litter on any open or vacant private property within the area of metropolitan government whether owned by such person or not. (Prior code § 36-1-20)

10.24.150 Litter from vehicles—Liability of drivers.

A. No person, while a driver or passenger in a vehicle, shall throw or deposit litter upon any street or other public place within the area of metropolitan government, or upon private property. The driver of a vehicle from which litter is thrown shall be deemed prima facie liable for any litter thrown from the vehicle.

B. No person, while a driver or passenger in a vehicle, shall throw or deposit non-biodegradable promotional materials upon any street or other public place within the area of the metropolitan government, or upon private property. The driver of a vehicle from which such promotional materials is thrown shall be deemed prima facie liable for any such materials thrown from the vehicle. (Ord. BL2014-922 § 3, 2014; prior code § 36-1-8)

10.24.160 Litter from vehicle loads and tires.

No person shall drive or move any truck or other vehicle within the area of metropolitan government unless such vehicle is so constructed or loaded as to prevent any load, contents or litter from being blown or deposited upon any street, alley or other public place. Nor shall any person drive or move any vehicle or truck within the area of metropolitan government, the wheels or tires of which carry onto or deposit in any street, alley or other public place, mud, dirt, sticky substances, litter or foreign matter of any kind, sufficient in amount to create a danger to the public in this full utilization of such street, alley or other public place. (Prior code § 36-1-9)

10.24.170 Litter from aircraft.

No person in an aircraft shall throw out, drop or deposit within the area of metropolitan government any litter, handbill or any other object. (Prior code § 36-1-16)

10.24.180 Distribution restricted to daylight hours.

It shall be a violation of this chapter to distribute handbills on private property on any day (a) before sunrise or (b) after sunset or 7:00 p.m., whichever occurs later. (Ord. BL2024-509 § 2, 2024)

10.24.190 Penalty for violation.

Any person who violates any of the provisions of this chapter shall be subject to a penalty of fifty dollars per day per violation. Each violation of this section shall be deemed a separate offense. (Ord. BL2024-509 § 3, 2024)

Chapter 10.26

HIGH WEEDS AND DEBRIS

Sections:

10.26.010 High weeds and debris.

10.26.010 High weeds and debris.

A. All premises and exterior property shall be maintained free from weeds in excess of twelve inches so as not to endanger the health, safety, and welfare of the citizens of the metropolitan government. "Weeds" shall be defined as all grasses, annual plants, and vegetation that grow without reasonable intent or purpose to cultivate, harvest, or use for human consumption, or are not otherwise trimmed or controlled. "Weeds" does not include ornamental grasses, trees, trimmed shrubs, or cultivated flowers and gardens.

B. Natural landscaping may be allowed if an intentional design for vegetative growth is on file with and approved by both the metropolitan beautification commission horticulturalist and the Nashville Department of Transportation and Multimodal Infrastructure's chief traffic engineer or his/her designee, provided there is a minimum three foot setback from the front property line and from any adjacent residential property line, and subject to Section 13.12.190. All government-owned greenways, parks, recreation areas, and the facilities or grounds of any department of the metropolitan government shall be exempt from the provisions of this section.

C. No owner or occupant shall permit the accumulation of debris, trash, litter or garbage, or any combination of those elements on exterior property or premises; such condition is declared to be a public nuisance and a danger to the public health, safety, and welfare. (Amdt. 1 to Ord. BL2025-995 § 1, 2025; Ord. BL2025-995 § 1, 2025; Amdt. 1 to Ord. BL2014-819 § 1, 2014; Ord. BL2014-819 § 1, 2014; Ord. BL2005-505 § 1, 2005)

Chapter 10.28

CONTROL OF EXCESSIVE VEGETATION*

Sections:

10.28.010	**Excessive growth and accumulation prohibited.**
10.28.020	**Board of property standards and appeals.**
10.28.030	**Department of codes administration.**
10.28.040	**Application of this chapter.**
10.28.050	**Notice of violation.**
10.28.060	**Failure to comply—Remedy by the department of codes administration.**
10.28.070	**Appeals to the board of property standards and appeals.**
10.28.080	**Collection of costs.**
10.28.090	**Right to appeal.**

10.28.010 Excessive growth and accumulation prohibited.

A. No person shall create, maintain or permit to maintain the excessive growth of any vegetation, including trees, vines, grass, underbrush and/or the accumulation of debris, trash, litter or garbage, or any combination of those elements, so as to endanger the health, safety or welfare of the citizens of the metropolitan government or to encourage the infestation of rats or other harmful rodents or animals.

B. All premises and exterior property shall be maintained free from weeds in excess of twelve inches so as not to endanger the health, safety, and welfare of the citizens of the metropolitan government. Weeds shall be defined as all grasses, annual plants and vegetation, other than ornamental grasses, trees or shrubs; provided, however, this term shall not include cultivated flowers and gardens.

C. Subject to Section 13.12.190, natural landscaping may be allowed if an intentional design for vegetative growth is on file with and approved by both the metropolitan beautification commission horticulturist and the Nashville Department of Transportation and Multimodal Infrastructure's chief traffic engineer or his/her designee. (Amdt. 1 to Ord. BL2025-995 § 2, 2025; Ord. BL2025-995 § 2, 2025; Ord. BL2018-1256 § 1, 2018; Ord. BL2017-867 § 1, 2017)

10.28.020 Board of property standards and appeals.

The board of property standards and appeals is empowered to hear matters involving control of excessive vegetation as set out in this chapter. (Amdt. 1 to Ord. BL2017-867 § 1, 2017; Ord. BL2017-867 § 1, 2017)

10.28.030 Department of codes administration.

A. The department of codes administration is designated, pursuant to Tennessee Code Annotated § 6-54-113, as the appropriate entity to administer and enforce this chapter.

B. The department of codes administration may adopt rules and regulations necessary for the administration and enforcement of this chapter, making due provision for a hearing upon request of a person aggrieved by any determination made thereunder.

C. The department of codes administration is authorized to investigate any alleged violations of this chapter, and compose a report of any violation of this chapter to assist in remedying or seeking a remedy for violations of this chapter. The authority under this chapter may be exercised in lieu of or in addition to any other authority of the department of codes administration to enforce this or similar provisions. (Ord. BL2017-867 § 1, 2017)

10.28.040 Application of this chapter.

In accordance with Tennessee Code Annotated § 6-54-113, the provisions of this chapter shall apply to both occupied and unoccupied properties. (Ord. BL2017-867 § 1, 2017)

10.28.050 Notice of violation.

A. At any time the department of codes administration is alerted to or determines that the provisions of Section 10.28.010 are being violated or that the conditions prohibited therein exist, it shall, through its director or other representative, give notice to the owner of record to immediately remedy the violation.

B. The notice shall:

1. Be given by United States mail, addressed to the last known address of the owner of record. In accordance with Tennessee Code Annotated § 6-54-113, when an attempt at notification by United States mail fails or no valid last known address exists for the owner of record, the department of codes administration may publish the

*__Editor's note—__Prior to reenactment by Ord. BL2017-867, Ord. BL2016-124 § 1, passed March 1, 2016, repealed Ch. 10.28, §§ 10.28.010—10.28.090, which pertained to control of excessive vegetation and derived from prior Code §§ 36-1-23—36-1-29. See the Ordinance List and Disposition Table for complete derivation.

notice in a newspaper of general circulation in Davidson County for no less than two consecutive issues or personally deliver the notice to the owner of record. For purposes of this section, such publication shall constitute receipt of notice effective on the date of the second publication of the notice and personal delivery shall constitute receipt of notice immediately upon delivery.

2. Be written in plain language and include:

a. A brief statement of the law, including the consequences of failing to remedy the violation or condition,

b. The person, office, address and telephone number of the administrative official giving notice,

c. An estimate of the cost of remedying the violation based upon customary community standards,

d. A statement that the owner is entitled to a hearing and may appeal the decision to the property standards board and the means by which such an appeal must be initiated. (Ord. BL2017-867 § 1, 2017)

10.28.060 Failure to comply—Remedy by the department of codes administration.

A. After ten days from the date of the notice prescribed in Section 10.28.050, if the condition has not been remedied and no appeal initiated, the department of codes administration shall begin the process to immediately remedy and remove or cause to be remedied and removed the violations or conditions at a cost in accord with fair and reasonable community standards. Provided, however, if the owner of record of the property is a carrier engaged in the transportation of property or is a utility transmitting communications, electricity, gas, liquids, steam, sewerage or other materials, the ten-day period of the first sentence of this subsection shall be twenty days, excluding Saturdays, Sundays and legal holidays.

B. The department of codes administration is authorized to clear the lots found to be in violation of Section 10.28.010 and charge a reasonable fee therefor, or to refer any such lots to a private contractor or contractors, duly selected by the purchasing agent pursuant to Title 4 of the Metropolitan Code of Laws. The costs of utilizing such private contractor or contractors shall be reimbursed from a special revolving account established for this purpose. The funds recovered, pursuant to subsection C of this section, shall be deposited into such special revolving account, in addition to any funds appropriated to this special revolving account by the metropolitan council. The director of the department of codes administration is authorized to transfer necessary funds from his operating funds to the special revolving account established by this subsection.

C. Within sixty days of the date the violation is remedied and/or the condition is removed, the department of codes administration shall submit a statement of the cost to the metropolitan trustee. The department of codes administration is authorized to and shall record a lien against the property in the register's office of Davidson County on or before the date that the statement of costs is submitted to the metropolitan trustee. Any lien so recorded shall be released by payment thereof in full, or by operation of the laws of the State of Tennessee and/or the United States or by vote of the property standards board based upon a showing of substantial hardship and that release of the lien created under this section will not obstruct or materially impede the purposes of this chapter.

D. Any person failing to take the required remedial action under subsection A of this section shall be in violation of this chapter and shall be subject to a fine of up to fifty dollars, with each day constituting a separate violation. Provided, however, such fines may not exceed a total of two hundred fifty dollars on any one lot. Nothing in this subsection shall be construed to adversely affect the remedies stated elsewhere in this section; the remedy stated herein being cumulative in nature.

E. Nothing in this chapter shall prevent the department of codes administration from seeking a remedy for any violation of Section 10.28.010 in a court of competent jurisdiction. (Ord. BL2017-867 § 1, 2017)

10.28.070 Appeals to the board of property standards and appeals.

A. Any owner of record aggrieved by the determination of the department of codes administration made pursuant to Section 10.28.050(A) may appeal to the board of property standards and appeals within ten days of receipt of the notice; failure to appeal within the specified time period shall without exception constitute waiver of the right of appeal.

B. The board of property standards and appeals may adopt procedural rules for the conduct of hearings before it in accordance with Tennessee Code Annotated § 6-54-113.

C. If the board determines: (1) that the department of codes administration correctly found a violation, an order so finding shall be entered and a copy sent to the metropolitan trustee and the record owner; (2) that the department of codes administration incorrectly found a violation, an order so finding shall be entered and a copy sent to the record owner.

D. The board of property standards and appeals shall also have the authority to hear appeals from decisions of the urban forester regarding the designation and removal of hazard trees, tree permits relating to public trees, and permits for arborists. (Ord. BL2017-867 § 1, 2017)

10.28.080 Collection of costs.

The metropolitan trustee shall, upon receipt of a lien and a statement of costs, make an appropriate notation in the files and collect the costs in the same manner as the taxes are collected. (Ord. BL2017-867 § 1, 2017)

10.28.090 Right to appeal.

Any person aggrieved by an order or other action of the board of property standards and appeals may appeal to a court of competent jurisdiction as provided for under the laws of the State of Tennessee. (Ord. BL2017-867 § 1, 2017)

Chapter 10.30

SCRAP TIRES

Sections:

10.30.010	**Definitions.**
10.30.020	**Scrap tire management—General.**
10.30.030	**Accumulation.**
10.30.040	**Reporting.**
10.30.050	**Enforcement.**
10.30.060	**Violations and penalties.**
10.30.070	**Civil remedies and abatement of nuisance.**
10.30.080	**Severability.**

10.30.010 Definitions.

"Dump" means to throw, discard, place, deposit, discharge, bury, burn, or dispose of a substance.

"Person" means any individual, partnership, firm, company, corporation, association, joint stock company, or any other legal entity, or their legal representatives, agents or assigns.

"Retail tire dealer" means a person actively engaged in the business of selling new and/or used replacement tires.

"Scrap tire" means an unshredded tire that is no longer suitable for its original intended purpose because of wear, damage, or defect.

"Scrap tire generator" means any person who generates scrap tires. Generators may include, but are not limited to, retail tire dealers, retreaders, scrap tire processors, automobile dealers, private company vehicle maintenance shops, garages, and service stations. (Ord. BL2009-546 § 1, 2009)

10.30.020 Scrap tire management—General.

A. The owner or occupant of any premises shall be responsible for the sanitary handling and disposal of all scrap tires on the premises used or occupied by such person.

B. It shall be unlawful to cause or allow the dumping of scrap tires at any place within the area of the metropolitan government including, but not limited to:

1. In or on any public highway, road, street, alley, thoroughfare, or right-of-way including any portion of the right of way thereof;

2. On any public or private property within the area of the metropolitan government except at duly authorized waste convenience centers operated by the metropolitan department of public works that accept tires.

C. This ordinance shall not prohibit the disposal of shredded tires within the area of the metropolitan government in a manner consistent with Tennessee Code Annotated Section 68-211-867. (Ord. BL2009-546 § 1, 2009)

10.30.030 Accumulation.

A. It shall be unlawful for any person in a residential zoning district to accumulate more than five scrap tires on or around property, which they own or occupy.

B. A retail tire dealer may hold up to one hundred scrap tires per garage bay in storage, up to a maximum of five hundred scrap tires.

C. Scrap tires must be stored in covered or enclosed areas, or under an impermeable cover to prevent the accumulation of water. (Ord. BL2009-546 § 1, 2009)

10.30.040 Reporting.

Retail tire dealers shall keep records regarding the disposal of scrap tires generated at each of the retail tire dealer's business locations. This report shall include the name, address, telephone number and certificated motor carrier identification number of the waste tire transporter and the number of whole waste tires transported from the retail tire dealers business location(s) by the waste tire transporter(s). These records must be kept on site at each business location and made available for inspection by the metropolitan department of public works, the Metropolitan Nashville Police Department, the department of codes administration and/or the department of health within five days upon request. All records shall be retained for a period of not less than three years. (Ord. BL2009-546 § 1, 2009)

10.30.050 Enforcement.

A. The metropolitan department of public works, the Metropolitan Nashville Police Department, the department of codes administration and/or the department of health shall have the authority and responsibility for enforcing the provisions of this chapter.

B. Any agent of any of the departments authorized to enforce this chapter shall be empowered to enter any property, upon reasonable cause, at reasonable or necessary times in order to properly inspect for violations of this chapter, subject to the condition that to allow entry onto private property for inspection, the alleged violation of this chapter must be visible from a public road or right-of-way, or by a court order.

C. It is unlawful for any person, whether owner, occupant, or party in control of the building, structure, or premises, to refuse the entry of an enforcement agent or to interfere with the lawful enforcement of this chapter.

D. In the event any enforcement agent determines that there has been a violation of this chapter or has grounds to believe that a violation has occurred, a notice of violation shall be provided to the owner, occupant, or person or entity in control of the building, structure, or premises where the violation or alleged violation exists. Said notice of violation shall:

1. Be in writing;

2. Include a description of the building, structure or premises sufficient for identification;

3. Include a statement of the violation(s);

4. Include an order to correct allowing a reasonable time to bring the premises into compliance with this chapter;

5. Be personally delivered by the director or sent by certified or first-class mail addressed to the last known address; and

6. If notice sent by certified or first class mail is returned showing that the letter was not delivered, a copy thereof shall be posted in a conspicuous place in or about the building, structure, or premises affected by such notice. (Ord. BL2009-546 § 1, 2009)

10.30.060 Violations and penalties.

Any person(s), firm, or corporation found by a court of competent jurisdiction to be in violation of any portion of this chapter shall be subject to one or more of the following penalties:

A. A fine of fifty dollars per violation, with each unlawfully disposed scrap tire being considered a separate violation. Further, each day the violation continues shall constitute a separate offense; and/or

B. The court may order the publication of the names and photographs of persons found by a court of competent jurisdiction to be in violation of this chapter; and/or

C. The court may order the person to repair or restore property damaged, or pay damages resulting from such violations, or perform public service related to the repair or restoration of property damaged by the violation; and/or

D. In case of a tire dump, the property owner, contractor, developer, builder or other person responsible for the property shall cause the property to be cleaned and to come into full compliance with this chapter. The metropolitan government shall not be responsible for any costs of cleanup or remediation. (Ord. BL2009-546 § 1, 2009)

10.30.070 Civil remedies and abatement of nuisance.

In the event that any person violates any provision of this chapter, the metropolitan government may, in addition to other remedies, institute an action for injunction, declaratory relief, or other appropriate action or proceeding to prevent such unlawful acts or to correct or abate any such violation. In addition, the metropolitan government may immediately revoke or suspend any and all business, building, development or any and all other permits issued by the metropolitan government related to the property or properties involved with the violation until such time that compliance is met, or until the ruling of a court of competent jurisdiction is obtained, at which time respective permits shall be reissued. (Ord. BL2009-546 § 1, 2009)

10.30.080 Severability.

Should any sentence, section, subsection or provision of this chapter or application of a provision of this chapter be declared invalid or unconstitutional by any court of competent jurisdiction, such declaration shall not affect the validity of the chapter as a whole or any part thereof that is not specifically declared to be invalid or unconstitutional. (Ord. BL2009-546 § 1, 2009)

Chapter 10.32

RODENTS, INSECTS AND OTHER PESTS

Sections:

10.32.010	**Definitions.**
10.32.020	**Ratproofed business buildings required.**
10.32.030	**Buildings in which foodstuffs are stored.**
10.32.040	**Inspection prior to issuance of license.**
10.32.050	**Inspection authority—Abatement notice.**
10.32.060	**Ratproofing measures—Compliance required.**
10.32.070	**Rat eradication measures—Compliance required.**
10.32.080	**Eliminating rat harborage areas—Floor construction requirements.**
10.32.090	**Maintenance of ratproofed buildings.**
10.32.100	**Removal of ratproofing prohibited.**
10.32.110	**Storage of animal feed.**
10.32.120	**Storage and disposal of garbage.**
10.32.130	**Accumulation of garbage.**
10.32.140	**Accumulation of building materials.**
10.32.150	**Quarantine of premises.**
10.32.160	**Removing stagnant water.**
10.32.170	**Responsibilities of owners—Failure to comply.**
10.32.180	**Government use of airborne pesticides—Public notification and protection.**

10.32.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Business building" means any structure, whether public or private, that is adapted for occupancy for transaction of business, for rendering a professional service, for amusement, for the display, sale or storage of goods, wares or merchandise or for the performance of work or labor, including hotels, apartment buildings, tenement houses, roominghouses, office buildings, public buildings, stores, theaters, markets, restaurants, grain elevators, abattoirs, warehouses, workshops, factories and all outhouses, sheds, barns and other structures or premises used for business purposes.

"Chief medical director" means the chief administrative officer of the board of health or his designated representative. "Department of health" means the department of health of the metropolitan government. Such term shall include the board and all of its agents, employees and activities.

"Eradication" means the elimination or extermination of rodents or insects and other pests from any building, lot, premises or commercial vehicle through the use of traps, poisons, fumigation or any other method of extermination.

"Harborage" means any condition which provides shelter or protection for rodents or insects and other pests.

"Insects and other pests" means the members of class Insecta and such members of the phylum Arthropoda as spiders, mites, ticks, centipedes and wood lice.

"Occupant" means the person who has the use of or occupies any business building or a part or fraction thereof, whether the actual owner or tenant. In the case of vacant business buildings or any vacant portion of a business building, the owner, agent or other person having custody of the building shall have the responsibility of an occupant of a building.

"Owner" means the actual owner of the business building, whether individual, partnership or corporation, or the agent of the building or other person having custody of the building or to whom rent is paid.

"Ratproofing" means a form of construction to prevent the ingress of rats into business buildings from the exterior or from one business building or establishment to another. It consists of rendering all actual or potential openings in the exterior walls, ground or first floors, basements, roofs and foundations, that may be reached by rats from the ground by climbing or by burrowing, with material impervious to rat-gnawing. (Prior code §§ 20-1-1 (part), 20-1-166)

10.32.020 Ratproofed business buildings required.

All business buildings in the metropolitan government area shall be ratproofed, freed of rats and maintained in a ratproof and rat-free condition under the direction and supervision of the chief medical director. (Prior code § 20-1-167)

10.32.030 Buildings in which foodstuffs are stored.

It is unlawful for any person to occupy any building or structure wherein foodstuffs are to be stored, kept,

handled, sold, held or offered for sale without complying with the ratproof regulations prescribed in this chapter for existing buildings and structures. (Prior code § 20-1-174)

10.32.040 Inspection prior to issuance of license.

No license shall be issued by the metropolitan government for the operation of any new businesses listed in Section 10.32.030 or to operate any such business in a new location until the building where such business is to be located or operated has been inspected and found by the chief medical director or his authorized representative to comply with the provisions of this chapter. (Prior code § 20-1-175)

10.32.050 Inspection authority—Abatement notice.

A. The chief medical director or authorized personnel of the department of health are empowered to make such unannounced inspections of the interior and exterior of business buildings as, in their opinion, may be necessary to determine such compliance with this chapter.

B. When any evidence is found indicating the presence of rats or openings through which rats may enter business buildings, the chief medical director or authorized personnel of the department of health shall serve the owners or occupants with notice or orders to abate the conditions found. (Prior code § 20-1-171)

10.32.060 Ratproofing measures—Compliance required.

Upon receipt of written notice or order signed by the chief medical director, the owner of any business building specified therein shall take immediate measures for ratproofing the building. Unless such work and improvements have been completed by the owner in the time specified in the written notice, in no event to be less than fifteen days, or within the time to which a written extension may have been granted by the chief medical director, the owner shall be deemed guilty of a violation of this code. (Prior code § 20-1-168)

10.32.070 Rat eradication measures—Compliance required.

Whenever the chief medical director notifies the occupant of a business building that there is evidence of rat infestation of the building, the occupant shall immediately institute rat eradication measures, and shall continuously maintain such measures in a satisfactory manner until the premises are rat-free or the chief medical director advises that there is no evidence of rat infestation. Unless such measures are taken within seven days after receipt of notice, the occupant of the business building shall be guilty of a violation of this code. (Prior code § 20-1-169)

10.32.080 Eliminating rat harborage areas—Floor construction requirements.

Whenever conditions inside or outside business buildings provide extensive rat harborage, the chief medical director or authorized personnel of the department of health may require the owner to install suitable cement floors in basements, or to replace wooden first or ground floors, or require the owner or occupant to correct such rat harborage as maybe necessary in order to facilitate rat eradication in a reasonable time. (Prior code § 20-1-172)

10.32.090 Maintenance of ratproofed buildings.

The occupants of all ratproofed business buildings shall maintain the premises in a ratproof condition, and repair all breaks or leaks that may occur in the ratproofing, unless such breaks or leaks develop as the result of natural deterioration of the building. (Prior code § 20-1-170)

10.32.100 Removal of ratproofing prohibited.

It is unlawful for the occupant or owner or any contractor, public utility company, plumber or other person to remove the ratproofing from any business building for any purpose and fail to restore the same in a satisfactory condition or to make any new openings that are not closed or sealed against the entrance of rats. (Prior code § 20-1-173)

10.32.110 Storage of animal feed.

All food and feed kept for feeding chickens, cows, pigs, horses and other animals shall be kept and stored in rat-free and ratproof containers, compartments or rooms, unless kept in a ratproof building. (Prior code § 20-1-176)

10.32.120 Storage and disposal of garbage.

All garbage or refuse consisting of waste animal or vegetable matter upon which rats may feed and all small dead animals shall be placed and stored, until collected, in covered metal containers of a type prescribed by the department of public works. It is unlawful for any person to dump or place on any premises, land or waterway any dead animals or waste vegetable or animal matter of any kind. (Prior code § 20-1-177)

10.32.130 Accumulation of garbage.

It is unlawful for any person to place, leave, dump or permit to accumulate any garbage, rubbish or trash in any building or premises so that same shall or may afford food or harborage for rats. (Prior code § 20-1-178)

10.32.140 Accumulation of building materials.

It is unlawful for any person to permit to accumulate on any premises, improved or vacant, and on any open lot or alley, any lumber, boxes, barrels, bricks, stones or other similar materials that may be permitted to remain thereon, unless the same shall be evenly piled or stacked, so that these materials shall not afford harborage for rats. (Prior code § 20-1-179)

10.32.150 Quarantine of premises.

In order to minimize human infection by rats, the chief medical director is authorized to declare that any premises shall be quarantined until the owner, tenant or other person in control of the premises shall have fully complied with any action with reference to such premises required by the chief medical director to accomplish this purpose. (Prior code § 20-1-180)

10.32.160 Removing stagnant water.

A. The chief medical director may order the person in control of any marsh, inland swamp, sunken lot, property below grade, excavation or any other place where stagnant water may collect to fill in or drain the same and take other adequate measures to prevent the breeding or harborage of insects, rodents and other pests.

B. The chief medical director may order the person in ownership or control of any property or facility storing tires where stagnant water may collect to eliminate the collection of water in the tires and employ other adequate measures to prevent the breeding or harborage of insects, rodents and other pests. (Amdt. 1 with Ord. 2002-1122 § 1, 2002; Prior code § 20-1-181)

10.32.170 Responsibilities of owners—Failure to comply.

Orders of the chief medical director pursuant to this chapter shall be executed by the owner, tenant or person in control of the premises at his or their expense, or the metropolitan government may carry out such sanitary activities and charge the expense of same to the owner, at the option of the chief medical director; provided, that unless otherwise specified in this chapter, the owner, tenant or person in control of the premises shall, after the serving of the order upon him, be given five days within which to comply with the orders of the chief medical director, and in case, in the opinion of the chief medical director, five days is not sufficient, the chief medical director may extend the time not to exceed seven additional days. (Prior code § 20-1-182)

10.32.180 Government use of airborne pesticides—Public notification and protection.

In the event the department of health deems airborne pesticide spraying is necessary to manage and control mosquitoes or other pests, the department of health shall take the following actions to inform and protect the citizens of the metropolitan government prior to the use of such airborne pesticides:

A. Post clearly visible and legible signs informing neighborhood residents that the department of health will be spraying airborne pesticides not less than forty-eight hours prior to spraying pesticides in the area. The department of health shall use its best efforts to post the signs within one hundred feet of all entry intersections around the perimeter of the affected spray area and all major artery intersections within the affected spray area. Such signs shall include, but not be limited to:

1. Day of the week and time of spraying.

2. A contact number for the health department regarding the use of airborne pesticides.

3. A contact number to call to opt out of the pesticide spraying.

B. The department of health will notify citizens who own a landline phone within the affected area by automated phone message. Upon the written request by any resident within the area of the metropolitan government, the department of health shall provide such residents written notice by email informing them when the department of health will be spraying airborne pesticides in their neighborhood. Residents will receive notice not less than forty-eight hours prior to spraying pesticides in the area. The notice shall include, but not be limited to:

1. The date, time and location of spraying.

2. A contact number for the health department regarding the use of airborne pesticides.

3. The procedure residents can use to opt out of the pesticide spraying.

C. The following spraying exemptions shall be implemented by the department of health:

1. Residents who opt out of the spraying program will be granted a minimum buffer of one hundred fifty feet from the property line. This buffer may be removed if the director of health determines that a documented threat to public health exists in the area schedule to be sprayed. The department of health will use its best efforts to notify residents in advance if the buffer is removed.

2. Airborne pesticide spraying shall be postponed to another day if there is an air quality alert on the date of the scheduled spraying.

3. It shall be the policy of the department of health that spray truck drivers or other staff shall turn off the spray and verbally warn pedestrians or residents visible on streets or yards, and not resume spraying within approximately three hundred feet of such pedestrians or residents.

D. The department of health shall be relieved from any of the foregoing requirements of this section if the director of health determines that a documented threat to public health exists. (Ord. BL2007-1389 § 1, 2007)

Chapter 10.36

HOUSING SANITATION

Sections:

10.36.010	**Definitions.**
10.36.020	**Sanitation requirements—Abatement notice.**
10.36.030	**Vacation of buildings.**
10.36.040	**Deemed owners—Compliance required.**

10.36.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Chief medical director" means the chief administrative officer of the board of health or his designated representative.

"Department of health" means the department of health of the metropolitan government. Such term shall include the board and all of its agents, employees and activities. (Prior code § 20-1-1 (part))

10.36.020 Sanitation requirements—Abatement notice.

Every dwelling and every part thereof shall be kept clean and free from any accumulation of dirt, filth, rubbish, garbage or similar matter, and shall be kept free from vermin or rodent infestation. All yards, lawns and courts shall be similarly kept clean and free from rodent infestation. It shall be the duty of each occupant of a dwelling unit to keep in a clean condition that portion of the property which he occupies or over which he has control. If the occupant shall fail to keep his portion of the property clean, the chief medical director may send a written notice to the occupant to abate such nuisance within the time specified in such notice; provided, that when, in the opinion of the chief medical director, such nuisance constitutes an actual menace to health, he shall proceed forthwith to cause such nuisance to be abated. Failure of the occupant to comply with such notice shall constitute a violation of this code. (Prior code § 20-1-141)

10.36.030 Vacation of buildings.

Whenever it is found by the chief medical director that the remedies available to the agency of the metropolitan government having primary responsibility in the field of housing are inadequate to protect an existing or threatened menace to the public health, and that a dwelling is unfit for human habitation or dangerous to life or health by reason of the existence on the premises of any condition likely to cause sickness or injury among the occupants of such dwelling, or for any other causes affecting the public health, the chief medical director may issue an order requiring such dwelling to be vacated. A copy of such order shall be posted on the front of the dwelling at least ten days before it shall be effective, unless the situation is of a character requiring immediate action, in which case the effective time of the order shall be such as, in the judgment of the chief medical director, is reasonable and proper. A copy of such order shall be sent to the owner of the property or his agent, if such names and addresses, on diligent search, can be ascertained. The dwelling so ordered to be vacated shall not again be occupied until a written statement has been secured from the chief medical director, showing the dwelling or its occupation has been made to comply with this or any other existing law. It shall be unlawful for any person to violate such order of the chief medical director. (Prior code § 20-1-142)

10.36.040 Deemed owners—Compliance required.

Whenever any person shall be in actual possession or have charge, care or control of any property within the metropolitan government area as executor, administrator, trustee, guardian or agent, such person shall be deemed and taken to be the owner of such property within the true intent and meaning of this chapter, and shall be bound to comply with the provisions of this chapter to the same extent as the owner, and notice to any such person of any order or decision of the chief medical director or the board of health shall be deemed to be a good and sufficient notice, as if such person were actually the owner of such property. (Prior code § 20-1-143)

Chapter 10.40

TRAILER COURTS

Sections:

10.40.010	**Definitions.**
10.40.020	**Permits.**
10.40.030	**Inspection authority—Right of entry.**
10.40.040	**Location and planning.**
10.40.050	**Service buildings.**
10.40.060	**Additions to trailers—Parking restrictions.**
10.40.070	**Water supply.**
10.40.080	**Sewage disposal.**
10.40.090	**Plumbing.**
10.40.100	**Electrical outlets and power lines.**
10.40.110	**Liquefied petroleum gas.**
10.40.120	**Fire prevention.**
10.40.130	**Refuse storage, collection and disposal.**
10.40.140	**Insect and rodent control measures.**
10.40.150	**Communicable or contagious diseases.**
10.40.160	**Register of coaches and occupants.**

10.40.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Chief medical director" means the chief administrative officer of the board of health or his designated representative.

"Department of health" means the department of health of the metropolitan government. Such term shall include the board and all of its agents, employees and activities.

"Dependent trailer coach" means a trailer coach which does not have a toilet and a bathtub or shower.

"Independent trailer coach" means a trailer coach that has a toilet and a bathtub or shower.

"Service building" means a building housing toilet facilities for men and women, with slop-water closet and laundry facilities and with separate bath or shower accommodations.

"Trailer coach" means any vehicle used or so constructed as to permit its being used as a conveyance upon the public streets or highways, duly licensable as such, and constructed in such a manner as will permit occupancy thereof as a dwelling or sleeping place for one or more persons; provided, that this definition shall not include transport trucks or vans equipped with sleeping space for a driver.

"Trailer coach space" means a plot of ground within a trailer court, designated for the accommodation of one trailer coach.

"Trailer court" means any plot of ground upon which two or more trailer coaches, occupied for dwelling or sleeping purposes, are located. (Prior code §§ 20-1-1 (part), 20-1-144)

10.40.020 Permits.

No place or site within the metropolitan government area shall be established or maintained by any person as a trailer court unless he holds a valid permit issued by the director of the department of codes administration and the chief medical director in the name of such person for the specific trailer court. The chief medical director is authorized to suspend or revoke permits in accordance with the provisions of this chapter and any rules or regulations adopted by the board of health. (Prior code § 20-1-145)

10.40.030 Inspection authority—Right of entry.

A. The chief medical director is authorized and directed to make inspections to determine the condition of trailer courts, in order that he may perform his duty of safeguarding the health and safety of occupants of trailer courts and of the general public.

B. The chief medical director shall have the power to enter at reasonable times upon any private or public property for the purpose of inspecting and investigating conditions, relating to the enforcement of this chapter or of regulations promulgated by the board of health. (Prior code § 20-1-146)

10.40.040 Location and planning.

Each trailer court shall be located on a well-drained site, shall be located so that its drainage will not endanger any water supply and shall be in conformity with the plan approved by the chief medical director. The chief medical director may promulgate regulations for trailer court locations and plan approval, which shall provide for adequate drainage, space, lighting, safety, service buildings and other facilities necessary to protect the public health and prevent nuisances. (Prior code § 20-1-147)

10.40.050 Service buildings.

A. Each trailer court that accepts a dependent trailer coach for parking shall be provided with one or more service buildings, adequately equipped with flush-type toilet fixtures. No service building shall contain less than

one toilet for women, one toilet for males, one lavatory and shower for each sex, one laundry tray and one slop-water closet. Dependent trailer coaches shall be parked not more than two hundred feet from the service building.

B. Service buildings shall:

1. Be located fifteen feet or more from any trailer-coach space;

2. Be of permanent construction and be adequately lighted;

3. Be of moisture-resistant material, to permit frequent washing and cleaning;

4. Have sufficient toilet and laundry facilities, according to requirements promulgated by the chief medical director, to serve adequately males and females;

5. Have adequate heating facilities to maintain a temperature of seventy degrees Fahrenheit during cold weather, and to supply a minimum of three gallons of hot water per hour, per coach space, during the time of peak demand;

6. Have all rooms well ventilated, with all openings effectively screened;

7. Have at least one slop-water closet, supplied with hot and cold water, in a separate room. (Prior code § 20-1-148)

10.40.060 Additions to trailers—Parking restrictions.

No permanent additions of any kind shall be built onto or become a part of any trailer coach. Skirting of coaches is permissible, but such skirting shall not permanently attach the coach to the ground, provide a harborage for rodents or create a fire hazard. The wheels of the coach shall not be removed, except temporarily when necessary for repairs. Jacks or stabilizers may be placed under the frame of the coach to prevent movement on the springs while the coach is parked and occupied. (Prior code § 20-1-157)

10.40.070 Water supply.

An accessible, adequate, safe and potable supply of water shall be provided in each trailer court, capable of furnishing a minimum of one hundred twenty-five gallons per day per trailer coach space. Where a public supply of water of such quality is available, connections shall be made thereto, and its supply shall be used exclusively. The development of an independent water supply to serve the trailer court shall be made only after express approval has been granted by the chief medical director. (Prior code § 20-1-149)

10.40.080 Sewage disposal.

Trailer courts shall be served by a public sewer system, if available, or by a private disposal system which has the approval of the chief medical director, if a public sewer system is not available. Each trailer coach space shall be provided with a satisfactory sewer connection. All sewage disposal apparatus, including appurtenances thereto, shall be provided, maintained and operated so as not to create a nuisance or health hazard. (Prior code § 20-1-151)

10.40.090 Plumbing.

All plumbing in the trailer court shall comply with all state and local plumbing laws and regulations. (Prior code § 20-1-150)

10.40.100 Electrical outlets and power lines.

An electrical outlet supplying at least one hundred ten volts shall be provided for each trailer coach space. The installation shall comply with all state and local electrical codes and ordinances. Such electrical outlet shall be weatherproof. No power line shall be permitted to lie on the ground or to be suspended less than eighteen feet above the ground. (Prior code § 20-1-154)

10.40.110 Liquefied petroleum gas.

Liquefied petroleum gas for cooking purposes shall not be used at individual trailer coach spaces unless the containers are properly connected by copper or other suitable metallic tubing. Liquefied petroleum gas cylinders shall be securely fastened in place, and adequately protected from the weather. No cylinder containing liquefied petroleum gas shall be located in a trailer coach, nor within five feet of a door thereof. (Prior code § 20-1-155)

10.40.120 Fire prevention.

The trailer court area shall be subject to rules and regulations of the fire prevention authorities having jurisdiction. (Prior code § 20-1-156)

10.40.130 Refuse storage, collection and disposal.

The storage, collection and disposal of refuse in a trailer court shall be managed so as to create no health hazards, rodent harborage, insect-breeding areas, accident hazards or air pollution. All refuse shall be stored in fly-tight, watertight, rodentproof containers, which shall be provided in sufficient number and capacity to prevent any refuse from overflowing. Satisfactory container racks or holders shall be provided, and shall be located not more than one hundred fifty feet from any trailer coach space. Garbage shall be collected and disposed of in an

approved manner at least twice per week. (Prior code § 20-1-152)

10.40.140 Insect and rodent control measures.

Insect and rodent control measures to safeguard public health, as established by the chief medical director, shall be applied in each trailer court. The trailer court shall be kept free of rubbish, and shall be maintained in a satisfactory condition at all times. All harborage places for rodents or hosts of insect vectors shall be eliminated. All breeding places for flies and mosquitoes shall be eliminated or effectively treated. (Prior code § 20-1-153)

10.40.150 Communicable or contagious diseases.

Every owner, operator, attendant or other person operating a trailer court shall notify the chief medical director immediately of any suspected communicable or contagious disease within the trailer court. In the case of diseases diagnosed by a healthcare provider as quarantinable, such owner, operator, attendant or other person operating the trailer court shall not permit the departure of a trailer coach or its occupants or the removal therefrom of clothing or other articles which have been exposed to infection, without approval of the chief medical director. (Ord. BL2023-2125 § 4, 2023; prior code § 20-1-158)

10.40.160 Register of coaches and occupants.

A. Every trailer court owner or operator shall maintain a register containing a record of all trailer coaches and the occupants using the trailer court. Such register shall be available to any authorized person inspecting the court, and shall be preserved for the period required by the chief medical director.

B. Such register shall contain:

1. The names and addresses of all trailer coach occupants stopping in the court;

2. The make, model and license number of each motor vehicle and trailer coach;

3. The state, territory or county issuing the trailer license;

4. The dates of arrival and departure of each trailer coach. (Prior code § 20-1-159)

Chapter 10.44

MASS GATHERINGS*

***State law reference—**Mass gatherings, T.C.A. § 68-112-101 et seq.

Sections:

10.44.010	**Definitions.**
10.44.020	**Bond required.**
10.44.030	**Permit required—Application.**
10.44.040	**Space requirements.**
10.44.050	**Water supply and facilities.**
10.44.060	**Sewage disposal and facilities.**
10.44.070	**Food service plans and establishments.**
10.44.080	**Refuse storage, collection and disposal.**
10.44.090	**Overnight camping.**
10.44.100	**Lighting for facility areas.**
10.44.110	**Reserved.**
10.44.120	**Crowd control.**
10.44.130	**Regulatory personnel.**
10.44.140	**Medical care and facilities.**
10.44.150	**Injunctive relief.**

10.44.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Chief medical director" means the chief administrative officer of the board of health or his designated representative.

"Department of health" means the department of health of the metropolitan government. Such term shall include the board and all of its agents, employees and activities.

"Drinking water" means water provided or used for human consumption or for lavatory or culinary purposes.

"Food service establishment" means establishments for the preparation and serving of meals, lunches, short orders, sandwiches, frozen desserts or other edible products. The term includes but is not limited to restaurants, coffee shops, cafeterias, short order cafes, luncheonettes, taverns, lunchrooms, places manufacturing, wholesaling or retailing sandwiches or salads, soda fountains, institutions, both public and private, food carts, itinerant restaurants, industrial cafeterias, catering establishments, food vending machines and vehicles and operations connected therewith and similar facilities by whatever name called.

"Health authority" means the metropolitan board of health.

"Mass gathering" means any event likely to attract three thousand or more persons and to continue for twelve or more hours.

"Metropolitan board of health" means the metropolitan board of health as established in Article 10 of the Charter.

"Permit" means authorization granted to a person by the health authority to operate a mass gathering.

"Person" means the state or any agency or institution thereof, any municipality, political subdivision, public or private corporation, individual, partnership, association or other entity, and includes any officer or governing or managing body of any municipality, political subdivision or public or private corporation.

"Sewage" means human, domestic or animal wastes from residences, buildings, commercial and industrial establishments, institutions and other structures and shall include bath and toilet wastes, laundry wastes, kitchen wastes and other similar wastes together with water or other liquid wastes that may be present.

"Solid waste" means garbage, refuse and other discarded solid materials, including solid waste materials resulting from industrial, commercial and agricultural operations and from community activities.

"Toilet" means a structure used for the sanitary disposal or storage of human wastes without the aid of water carriage. Included with the scope of this definition are vault privies, chemical privies and portable privies, but pit privies are expressly excluded from this definition. (Prior code §§ 20-1-1 (part), 20-1-226)

10.44.020 Bond required.

The operator of a mass gathering shall provide a performance bond of fifty thousand dollars, and five thousand dollars additional for each five thousand persons or fraction thereof likely to attend to guarantee full compliance with the provisions of this chapter and other applicable laws and regulations. The bond shall also cover cleanup of the site and compliance with all provisions of public health laws and regulations. (Prior code § 20-1-227)

10.44.030 Permit required—Application.

A. No person shall hold or promote, by advertising or otherwise, a mass gathering unless a permit has been issued for the gathering by the health authority.

B. Application for a permit to promote or hold a mass gathering shall be made to the permit issuing official on a form and in a manner prescribed by the director of health by the person who will promote or hold the mass gathering. Application for a permit to promote or hold the mass gathering shall be made at least fifteen days before the first day of advertising and

at least forty-five days before the first day of the gathering. Water and sewage facilities shall be constructed and operational not later than forty-eight hours before the first day of the mass gathering. The application shall be accompanied by such plans, reports and specifications as the permit issuing official shall deem necessary. The plans, reports and specifications shall provide for adequate and satisfactory water supply and sewage facilities, adequate drainage, adequate toilet and lavatory facilities, adequate refuse storage and disposal facilities, adequate sleeping areas and facilities, wholesome food and sanitary food service, adequate medical facilities, insect and noxious weed control, adequate fire protection and such other matters as may be appropriate for security of life or health.

C. A separate permit shall be required for each mass gathering.

D. A permit may be revoked by the permit issuing official if he finds that the mass gathering for which the permit was issued is maintained, operated or occupied in violation of law, this chapter or the sanitary code of the health district in which the mass gathering is located. A permit may be revoked upon request of the permittee or upon abandonment of operation.

E. A permit issued for the operation of a mass gathering shall be posted or kept on file and made available by the operator on request. (Prior code § 20-1-228)

10.44.040 Space requirements.

An area of at least fifty square feet of usable land per person must be provided at the premises, exclusive of the area required for parking, traffic flows, sanitary facilities, food facilities, service buildings, stage, etc. (Prior code § 20-1-229)

10.44.050 Water supply and facilities.

A readily available potable water supply of adequate quantity to supply five gallons per person per day must be provided. One fountain or drinking water outlet shall be provided for each one hundred people and within five hundred feet of camping and congregating areas. Water shall be available to a medical complex. Water shall be available at first aid and emergency health care facilities. (Prior code § 20-1-230)

10.44.060 Sewage disposal and facilities.

Toilet facilities shall be provided at the rate of one toilet seat per one hundred people; provided, that daily maintenance and servicing is assured; if not proposed and provided for, then one toilet seat for each thirty-three people is required. One lavatory shall be provided for each one hundred people and provisions shall be made for wastewater disposal at these facilities. The toilet facility areas shall be fenced, lighted and adequately identified to allow for service vehicles to maintain daily. Final disposal of all liquid wastes shall be in an area approved by the health authority. Adequate maintenance personnel shall be provided to assure a supply of toilet paper is available at all toilet facilities at all times. (Prior code § 20-1-231)

10.44.070 Food service plans and establishments.

All food service plans and food service establishments shall be approved by the health authority. (Prior code § 20-1-233)

10.44.080 Refuse storage, collection and disposal.

Adequate storage facilities shall be provided to receive refuse of two pounds per person per day, the equivalent to one cubic yard per one hundred twenty-five people per day. Approved receptacles shall be strategically located. Final disposal of solid waste shall be in an established landfill site as approved by the health authority. No burning of refuse shall be permitted. The person to whom the permit is issued shall be responsible for seeing that the grounds are at all times kept clear of solid waste. (Prior code § 20-1-232)

10.44.090 Overnight camping.

Should overnight camping be allowed, minimum standards as provided for in the state Camp Sanitation Act shall be adhered to. It is strongly recommended that shower facilities be provided where overnight camping is permitted. (Prior code § 20-1-234)

10.44.100 Lighting for facility areas.

All water supply, sewage, refuse and food service facility areas shall be provided with sufficient light with a minimum of at least five footcandles. (Prior code § 20-1-236)

10.44.110 Reserved.

Editor's note—Ord. BL2019-1631, § 1, adopted August 20, 2019, repealed § 10.44.110, which pertained to noise level and derived from prior Code § 20-1-237. The user's attention is directed to Title 9, Noise and Amplified Sound.

10.44.120 Crowd control.

An acceptable plan shall be submitted giving details as to how the number of people admitted to the event will be controlled when reaching the maximum limit of the facilities provided. The number of people admitted to the area will be limited to that provided for by the

ratio of sanitary and emergency health care facilities. Security guards either regularly employed, duly sworn-in, off-duty police officers or private guards sufficient to provide adequate security for the maximum number of people to be assembled at the rate of at least one security guard for every seven hundred fifty people shall be provided. (Prior code § 20-1-235)

10.44.130 Regulatory personnel.

Provisions shall be made to provide the festival grounds with adequate number of public health officials to supervise the food service concessions and the water, sewage and refuse facilities. (Prior code § 20-1-238)

10.44.140 Medical care and facilities.

A. Physicians. The health department will approve physician services, provided the following conditions are met:

1. The sponsors or promoters must employ one physician for each ten thousand persons expected to attend (PEA). These physicians must agree to a schedule so that there will be the following ratios around the clock for each consecutive eight-hour period. The ratio of physicians per ten thousand per shift will be:

a. Eight a.m. to four p.m., 0.4 physician per ten thousand PEA;

b. Four p.m. to twelve midnight, 0.4 physician per ten thousand PEA;

c. Twelve midnight to eight a.m., 0.2 physician per ten thousand PEA.

2. Each physician employed must provide a notarized affidavit showing his name, current license to practice in the state and a schedule of the hours and dates the physician agrees to work during the outdoor festival, not to exceed forty hours per week.

3. There must be a minimum of one physician on duty at all times.

B. Nurses. The health department will approve nursing services, provided the following conditions are met:

1. The sponsors or promoters must employ two registered nurses (RN's), two licensed practical nurses (LPN's) and one ancillary medical person, e.g., nurses aides, persons with training as medical corpsmen or persons experienced as a hospital orderly, for each ten thousand persons expected to attend. The nursing personnel must agree to a schedule so that there will be the following numbers per ten thousand for each consecutive eight-hour period. The numbers of nursing staff per shift, per ten thousand will be:

a. Eight a.m. to four p.m., 0.8 RN's, 0.8 LPN's and 0.4 ancillary persons;

b. Four p.m. to twelve midnight, 0.8 RN's, 0.8 LPN's and 0.4 ancillary persons;

c. Twelve midnight to eight a.m., 0.4 RN's, 0.4 LPN's and 0.2 ancillary persons.

2. Each nurse employed must provide a notarized affidavit showing name, current license to practice in the state and a schedule of the hours and dates the nurse agrees to work during the duration of the outdoor gathering, not to exceed forty hours per week.

3. There must be at least one registered nurse, one licensed practical nurse and one ancillary medical person on duty at all times.

C. Emergency Transportation. There must be an arrangement for emergency evacuation of the sick and injured to licensed hospital facilities. This can be done by showing on-call availability of one ambulance for each ten thousand persons expected to attend or the on-call availability of a helicopter accommodating two litters for each one hundred twenty-five thousand persons expected to attend.

D. Facilities. There shall be facilities for healthcare providers to give out-patient care on the premises. The facility shall have chairs, examining tables with stirrups, locked cabinets for equipment and drugs. There will be an assortment of instruments for minor surgery and for examinations. Supplies such as sutures, novocaine, adrenalin and therapeutic injectibles will be available. There will be temporary holding facilities for the sick and injured for temporary treatment or while awaiting transport to a hospital. There will be one bed for each five thousand persons shielded with appropriate curtains for privacy. There shall be desks and chairs for staff and chairs for visitors. Toilet and lavatory facilities shall be immediately available.

E. Medical Supplies. The health authority shall have the authority to determine the quantitative and qualitative adequacy of medical supplies available.

F. Reimbursement of Expenses. The person to whom the permit is issued shall be obligated to reimburse the metropolitan government for any and all expense of medical treatment or hospital care arising out of or in connection with the mass gathering and for which compensation has not otherwise been provided. (Ord. BL2023-2125 § 5, 2023; prior code § 20-1-239)

10.44.150 Injunctive relief.

When it appears that the penalty provided in Section 1.01.030 is inadequate and insufficient to protect the public health, safety and welfare, the director of law is authorized to institute a civil proceeding in a court of competent jurisdiction to enjoin the violation or threat of violation of this chapter. (Ord. 95-1329 § 2 (part), 1995; prior code § 20-1-240)

Chapter 10.48

PUBLIC SWIMMING POOLS

Sections:

10.48.010	**Definitions.**
10.48.020	**Applicability and purpose of chapter.**
10.48.030	**Adoption of rules and regulations—Compliance required.**
10.48.040	**Application for permit.**
10.48.050	**Plans and specifications.**
10.48.060	**Permit required—Expiration and transferability.**
10.48.070	**Inspection and licensing fees—Classification of pools.**
10.48.080	**Health and safety requirements.**
10.48.090	**Pool maintenance—Operation of equipment.**
10.48.100	**Records.**
10.48.110	**Inspection—Right of entry.**
10.48.120	**Revocation of permits—Reissuance.**

10.48.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Chief medical director" means the chief administrative officer of the board of health or his designated representative.

"Conventional pool" means a public pool used or designed to be used for bathing, swimming or diving (with or without diving boards, platforms or other apparatus).

"Department of health" means the department of health of the metropolitan government. Such term shall include the board and all of its agents, employees and activities.

"Hydrotherapy," "Whirlpool" or "Spa-Type Pool." These pools are not designed for swimming but for therapeutic use and for physiological and psychological relaxation. They are not drained, cleaned and refilled after each use and they may include, but are not limited to, high-velocity air or water circulation systems utilizing hot, cold or ambient temperature water. The water temperature of such pools shall not exceed one hundred five degrees Fahrenheit (forty degrees Centigrade). They have closed-cycle water systems with complete water recirculation, filtration and disinfection.

"Private pool" means a pool facility used only by an individual, family or living unit for members and their guest(s), and shall not serve any type of cooperative housing or joint tenancy of four or more living units. The design, construction and operation of such pools are not subject to these regulations.

"Public swimming pool" or "public pool" means a structure of concrete, masonry or other approved materials, used for bathing or swimming, or for instructional purposes in swimming, diving or other aquatic activities by humans, and filled with a filtered and disinfected water supply, together with buildings, appurtenances and equipment used in connection therewith. A public swimming pool or public pool means a conventional pool, spa-type pool, wading pool, special purpose pool or water recreation attraction, to which admission may be gained with or without payment of a fee and includes, but is not limited to, pools operated by camps, places of worship, cities, clubs, counties, health spas, institutions, parks, state agencies, schools, subdivisions, or the cooperative living-type projects of four or more living units, such as apartments, boardinghouses, condominiums, hotels, mobile home parks, motels, recreational vehicle parks and trailer parks. The inclusion in the definition of "public swimming pool" of those serving four or more living units where the living units are predominantly of individual or family ownership (such as in a fourplex or larger multiple housing unit or a condominium) is for the protection of health and safety of the pool patrons and shall not be construed to mean that such pools are open to use by the general public.

"Special purpose pool" means a public pool used exclusively for a particular purpose, with design and operational features that provides patron participation, which is different from that associated with conventional pools, spa-type pools, wading pools or water recreation attractions.

"Wading pool," or "child's pool" means a public pool used, or designed to be used, primarily by nonswimming children for wading purposes.

"Water recreation attraction" means a facility designed for recreation where participants routinely experience partial or whole body contact with the water such as, but not limited to, hydro slides, artificial waves, etc. (Ord. BL2017-654 § 8, 2017; Ord. 89-813 § 1, 1989; prior code §§ 20-1-1 (part), 20-1-183)

10.48.020 Applicability and purpose of chapter.

The provisions contained in this chapter apply to all public swimming pools, including all facilities incident thereto. The purpose of this chapter is to provide a guide for the design, construction, operation and maintenance of such pools so that health and safety hazards will be minimized. (Prior code § 20-1-184)

10.48.030 Adoption of rules and regulations—Compliance required.

Reasonable regulations shall be promulgated by the department of health covering design, construction and operation of public swimming pools. No permit to construct, alter or remodel or license to operate shall be granted unless the pool conforms with such regulations. (Prior code § 20-1-185)

10.48.040 Application for permit.

The application for permit to construct or remodel a public swimming pool shall be on such forms as may be prescribed by the department of health, together with any supporting data as may be required for the proper review of the plans. (Prior code § 20-1-186(b))

10.48.050 Plans and specifications.

A. No person shall begin construction of a public swimming pool or shall substantially alter or reconstruct any public swimming pool without first having submitted plans and specifications to the department of health for review and approval. All plans and specifications shall be submitted in triplicate. Approval by the department of health shall not be construed to indicate approval of the strength or safety of any equipment or to indicate compliance with any requirement of a building code adopted pursuant to Section 16.08.010 and Chapters 16.28 through 16.40 and 16.48 through 16.50 of this code, as the same may be amended. Neither shall such approval by the department of health relieve any person from the duty to comply fully and completely with any and all applicable provisions of this code, nor any other requirement imposed by ordinance, statute, rule or regulation of the Metropolitan Government of Nashville and Davidson County, the State of Tennessee and the United States Government.

B. The pool and facilities shall be built in accordance with the plans approved, unless approval of changes has been given in writing by the department of health. The owner or his agent shall notify the department of health at specific predetermined stages of construction and at the time of completion of the pool to permit adequate inspection of the pool and related equipment during and after construction. The pool shall not be placed in operation until such inspections show compliance with the requirements of this chapter pertaining to swimming pools.

C. The criteria to be followed by the department of health in the review and approval of plans shall be promulgated as rules and regulations as authorized by this chapter.

D. The plans shall be drawn to scale and accompanied by proper specifications so as to permit a comprehensive engineering review of the plans, including the piping and hydraulic details, and shall include:

1. Plan and sectional views with all necessary dimensions of both the pool and surrounding area;

2. A piping diagram showing all appurtenances, including treatment facilities in sufficient detail, as well as pertinent elevation data, to permit a hydraulic analysis of the system;

3. The specifications shall contain details on all treatment equipment, including catalog identification of pumps, chlorinators, chemical feeders, filters, strainers, interceptors and related equipment.

E. Any person submitting plans and specifications in accordance with the provisions of paragraph A shall pay an initial filing fee per the following schedule:

1. Plan for new construction $250.00
2. Revision of previously approved plan . . 100.00
3. Plans for modification to existing pools. 100.00

These filing fees shall not be refundable if the plans are not approved or if the application is withdrawn or if the pool is not built or modified, nor shall a prior fee be applied to any subsequent review. (Ord. 92-396 § 1, 1992; Ord. 89-813 § 2, 1989; prior code § 20-1-186(a), (c)—(e))

10.48.060 Permit required—Expiration and transferability.

No person shall operate or maintain a public swimming pool unless he has obtained a permit to operate such pool from the department of health. Such permits shall be valid for one year, unless otherwise revoked for cause. Only persons who comply with this chapter shall be entitled to receive and retain such permit. Such permits are not transferable. (Prior code § 20-1-187)

10.48.070 Inspection and licensing fees—Classification of pools.

A. All public swimming pools within Davidson County must apply for and receive an operating permit from the metropolitan health department (see Section 10.48.060). Each pool must be inspected by the metropolitan health department and be required to pay an inspection and licensing fee.

B. The annual rate of such fees shall be structured as follows:

Class 1. All public swimming pools at apartment complexes, motels, hotels, clubs, etc., private or public, which normally confine their pool activities to approximately four months annually, shall be classified in Class

1. Class 1 swimming pool permits shall be issued upon the inspection and approval by the metropolitan health department for an annual fee of one hundred dollars.

Class 2. All public swimming pools at apartment complexes, motels, hotels, clubs, etc., private or public, which normally confine their pool activities to approximately six months annually, shall be classified as Class 2. Class 2 swimming pool permits shall be issued upon the inspection and approval by the metropolitan health department for an annual fee of one hundred fifty dollars.

Class 3. All public swimming pools which would normally be utilized year-round shall be classified as Class 3 swimming pools. This will include swimming pools found at health clubs, spas, etc., and all other swimming pools which will require a number of inspections and are required to maintain sanitation year-round. Class 3 swimming pool permits shall be issued upon the inspection and approval by the metropolitan health department for an annual fee of three hundred dollars.

C. The classifications of swimming pools set out in subsection B of this section shall not include swimming pools owned by private individuals at their private residences, but shall include all swimming pools to be utilized by any portion of the public at any institution, private or public. (Ord. 92-396 § 2, 1992; Ord. 89-813 §§ 3—5, 1989; prior code § 20-1-187.1)

10.48.080 Health and safety requirements.

A. No person having a communicable disease shall be employed or work at a public swimming pool. All patrons or swimmers suspected of having an infectious disease shall be excluded.

B. Appropriate facilities shall be provided for the safety of bathers as may be required by the department of health. This shall include lifesaving equipment, safety devices, lifebuoys, lifehooks, first-aid kits, telephone, and adequate staff during the swimming period who are competent in lifesaving and artificial resuscitation. Competent lifeguards shall be on duty during all swimming periods when a use fee is charged.

C. Every swimming pool shall be under the supervision of a capable individual who shall assume the responsibility for compliance with all provisions of this chapter relating to pool operation and maintenance, and safety of bathers.

D. The pool area will be surrounded by a fence or other suitable barricade of sufficient height and construction to deter small children from wandering into the pool.

E. Instructions regarding emergency calls shall be prominently posted.

F. Not more than the maximum design bather load shall be permitted in the swimming pool at any one time. (Ord. 89-813 §§ 6—8, 1989; prior code § 20-1-189)

10.48.090 Pool maintenance—Operation of equipment.

The pumps, filters, disinfectant and chemical feeders and related appurtenances shall be kept in operation at all times the swimming pool is in use and for such additional periods as needed to keep the pool water clear and of satisfactory bacterial quality. (Prior code § 20-1-192)

10.48.100 Records.

The operator of each pool shall keep a daily record of information regarding operation including disinfectant residuals, Ph, maintenance, procedures, recirculation, together with other data as may be required on forms furnished by the department of health. These data shall be kept on file by the operator for not less than two years for review by the department of health or submitted periodically to the department of health, as may be required by the chief medical director. (Ord. 89-813 § 9, 1989; prior code § 20-1-191)

10.48.110 Inspection—Right of entry.

The department of health is authorized to conduct such inspections as it deems necessary to ensure compliance with all provisions of this chapter, and shall have right of entry at any reasonable hours to the swimming pool for this purpose. (Prior code § 20-1-190)

10.48.120 Revocation of permits—Reissuance.

A. The department of health may revoke any permit for failure to comply with the duly promulgated regulations referred to in this chapter or in cases where the permit has been obtained through nondisclosure, misrepresentation or misstatement of a material fact.

B. Before a permit is revoked, the person to whom the permit has been issued shall have notice in writing enumerating instances of failure to comply with the regulations. He shall be given an opportunity for appeal to the board of health, regarding the reasonableness of the revocation of permit.

C. 1. The department of health may order a suspension of a permit and may order the owner or operator of a public swimming pool to prohibit any person from using it if it finds:

a. A failure of the equipment, structure, area or enclosure of the public swimming pool which jeopardizes the health or safety of the persons using or operating it; or

b. That the public swimming pool lacks properly functioning equipment or proper material for recirculating, treating, or testing the water used for swimming or bathing; or

c. A lack of required supervisory personnel or required lifeguards; or

d. That the operator of the public swimming pool is not maintaining the required water quality; or

e. That the operator does not possess a valid operating permit.

2. If the department of health orders the closing of a public swimming pool, it shall issue a written order to the owner or operator, or their representative, stating with particularity the reason for the order of closure along with its finding that the condition giving rise to the order represents a serious threat to the public health and safety. The order must state that the public swimming pool is to be closed immediately and must specify the corrective action necessary for the reinstatement of the permit.

3. The order must be served upon the owner, operator, representative or a person in charge of the public swimming pool. The person on whom the order is served shall close the public swimming pool immediately and shall prohibit any person from using it.

4. After the specified corrective action has been taken, the owner or operator or his representative shall notify the department that the public swimming pool is ready for reinspection. If upon reinspection the corrective action is approved, the department shall order the reinstatement of the permit, at which time the public swimming pool may be opened for use. If upon reinspection the corrective action is not approved, the operating permit remains suspended and the public swimming pool must be kept closed and out of use until corrective action is approved.

5. If a person is served with an order suspending the permit, the permit may be revoked unless the operator:

a. Closes the public swimming pool immediately; and

b. Takes any corrective action required by the order within the time therein specified.

D. The permit shall be reissued upon proper application and upon presentation of evidence that the deficiencies causing revocation have been corrected. (Ord. 95-1433 § 1, 1995; prior code § 20-1-188)

Chapter 10.52

QUARRYING AND MINING OPERATIONS

Sections:

10.52.010	**Definitions.**
10.52.020	**Nuisance declared when.**
10.52.030	**Abatement notice—Compliance or appeal required.**
10.52.040	**Failure to comply—Liability of owner.**
10.52.050	**Regulations and procedures for hearings.**

10.52.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Chief medical director" means the chief administrative officer of the board of health or his designated representative.

"Department of health" means the department of health of the metropolitan government. Such term shall include the board and all of its agents, employees and activities. (Prior code § 20-1-1 (part))

10.52.020 Nuisance declared when.

Holes, ponds, ditches and other depressions created by the mining, quarrying or digging operations by means of which rock, gravel, clay or other commercial products of the ground are obtained therefrom, which are left open and accessible to human beings who may receive injuries by reason thereof, are declared to be a nuisance. (Prior code § 20-1-214)

10.52.030 Abatement notice—Compliance or appeal required.

A. Whenever the chief medical director has knowledge of the existence of a nuisance, as defined in Section 10.52.020, he shall give ten days' written notice to the owner of the property on which such nuisance exists to eliminate the nuisance or to put a fence around the area to prevent people from being endangered by the hazards of such hole, pond, ditch or other depression. Such notice shall specify the manner in which the nuisance shall be abated.

B. Within the ten days specified in such notice, the property owner shall comply with the order and abate the nuisance, or file with the board of health an appeal from the order of the chief medical director, requesting a hearing by the board of health. The filing of such an appeal shall stay all further proceedings until the board of health, after a full hearing, has issued an order declaring that a nuisance exists on the property of the property owner and directing that such nuisance be abated. (Prior code § 20-1-215)

10.52.040 Failure to comply—Liability of owner.

If a property owner fails to appeal to the board of health within the ten-day period specified in Section 10.52.030, or if a property owner fails to comply with a final order of the board of health ordering such property owner to abate a nuisance, then the chief medical director, on behalf of the metropolitan government, or such other department or agency of the metropolitan government as shall be designated by the mayor, shall abate and remove the nuisance at the expense of the property owner, and the expense shall be secured by a lien upon the property for which the expenditure is made, which lien may be enforced by suit in the chancery court. (Prior code § 20-1-216)

10.52.050 Regulations and procedures for hearings.

The board of health is authorized to make such rules and regulations and to provide such procedures relating to the hearings provided for in this chapter with reference to the abatement of nuisances as it may deem necessary or proper. (Prior code § 20-1-217)

Chapter 10.56

AIR POLLUTION CONTROL

Sections:

10.56.010 Definitions.

Article I. Administration and Enforcement

10.56.020 Construction permits.
10.56.040 Operating permit.
10.56.050 Exemptions.
10.56.060 Transferability of permit.
10.56.070 Suspension or revocation of permit.
10.56.080 Permit and annual emission fees.
10.56.090 Board—Powers and duties.
10.56.100 Board—Consideration of facts and circumstances.
10.56.110 Rules and regulations—Hearings procedure.
10.56.120 Complaint notice—Hearings procedure.
10.56.130 Variances—Hearings procedure.
10.56.140 Emergency measures—Hearings procedure.
10.56.150 Nuisance declared—Injunctive relief.

Article II. Standards for Operation

10.56.160 Ambient air quality standards.
10.56.170 Emission of gases, vapors or objectionable odors.
10.56.180 Laundry operations—Dryer and vent pipe requirements.
10.56.190 Controlling wind-borne materials.
10.56.200 Sale, use or consumption of solid and liquid fuels.
10.56.210 Hazardous air pollutants.
10.56.220 Fuel-burning equipment.
10.56.230 Incinerators.
10.56.240 Internal combustion engines.
10.56.250 Open burning.
10.56.260 Process emissions.
10.56.270 Visible emissions.
10.56.280 Start-ups, shutdowns and malfunctions.
10.56.290 Measurement and reporting of emissions.
10.56.300 Testing procedures.

10.56.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Act" means the Clean Air Act, as amended, 42 U.S.C. § 7401, et seq.

"Actual emissions" means the actual rate of emissions of a pollutant from an emissions unit as determined below:

1. Actual emissions shall equal the average rate, in tons per year, at which the facility actually emitted the pollutant during a two-year period which precedes the particular date and which is representative of normal operation. The director may use a different time period upon determining that it is more representative of normal operation. Actual emissions shall be calculated using the facility's actual operating hours, productions rates, and type of materials processed, stored or combusted during the selected time period;

2. The director may presume that the source-specific allowable emissions for the facility are equivalent to the actual emissions of the facility; or

3. For any facility which has not begun normal operations on the particular date, actual emission shall equal the potential to emit.

"Administrator" means the Administrator of the United States Environmental Protection Agency or his designee.

"Air pollutant" means any particulate matter or any gas or vapor or any combination thereof including any physical, chemical, biological, radioactive (including source material, special nuclear material and byproduct material) substance or matter which is emitted into or otherwise enters the ambient air.

"Air pollution" means the presence in the outdoor atmosphere of one or more air pollutants in such quantities, characteristics or duration as is or tends to be injurious to human health or welfare, or animal or plant life or health, or property, or would interfere with the enjoyment of life or property.

"ASME" means the American Society of Mechanical Engineers.

"ASTM" means the American Society for Testing and Materials.

"Board" means the metropolitan board of health.

"Breeching" means any conduit for the transport of products of combustion or processes to the atmosphere or to any intermediate device before being discharged into the atmosphere. Such term does not include the chimney or stack.

"Cleaning fires" means the act of removing ashes from the fuel bed or furnace.

"Continuous monitoring" means the sampling and analysis of air pollutants in a continuous or timed sequence, using techniques which will adequately measure actual emission levels or ambient concentrations on a continuous basis.

"Department" means the department of health of the metropolitan government, including the board, agents, employees and divisions.

"Director" means the chief administrative officer of the metropolitan board of health or his designated representative.

"Emission" means the act of releasing or discharging air pollutants into the ambient air from source.

"Existing source" means any equipment, machine, device, article, contrivance or installation which was in existence on the effective date of this chapter, except that any existing equipment, machine, device, article, contrivance or installation which is altered, replaced or rebuilt that increases the amount of air pollutants emitted by such source or which results in the emission of any air pollutant not previously emitted shall be reclassified as a new source.

"Fuel-burning equipment" means any furnace, boiler, apparatus, stack, and all appurtenances thereto, used in the process of burning fuel for the primary purpose of producing heat or power by indirect heat transfer.

"Fugitive dust" means any solid, airborne particulate matter emitted from any source other than through a stack.

"Hand-fired fuel-burning equipment" means fuel-burning equipment in which fresh fuel is manually introduced directly into the combustion chamber but not including fireplaces.

"Hazardous material" means any air pollutant which may cause, or contribute to, an increase in mortality or an increase in serious irreversible, or incapacitating reversible illness and has been so defined in the Federal Register.

"Incinerator" means any equipment, device or contrivance used for the destruction of refuse by burning, and all appurtenances thereto.

"Internal combustion engine" means any engine in which the combustion of gaseous, liquid or pulverized solid fuel takes place within one or more cylinders.

"Legally enforceable" means all limitations and conditions which are enforceable by the director and the administrator, which includes all provisions of this chapter, any provisions of the State Implementation Plan, and any permit requirements.

"Major modification" means any physical alteration of or change in the method of operation of a major stationary source that would result in a significant net emissions increase of any pollutant subject to regulations under the Clean Air Act. Any net emissions increase that is considered significant for volatile organic compounds shall be considered significant for ozone. A physical alteration of or change in the method of operation shall not include:

1. Routine maintenance, repair and replacement;

2. Use of an alternative fuel or raw material by reason of an order under Sections 2(a) and (b) of the Energy Supply and Environmental Coordination Act of 1974 (or any superseding legislation) or by reason of a natural gas curtailment plan pursuant to the Federal Power Act;

3. Use of an alternative fuel by reason of an order or rule under Section 125 of the Clean Air Act;

4. An increase in the hours of operation or in the production rate, unless such change is prohibited by an enforceable permit condition; or

5. Any changes in ownership at a stationary source.

"Major source" means any stationary source (or any group of stationary sources) that are located on one or more contiguous or adjacent properties, and are under common control of the same person (or persons under common control) belonging to a single major industrial grouping and that are described in Paragraph (1), (2) or (3) of this definition. For the purposes of defining "major source," a stationary source or group of stationary sources shall be considered part of a single industrial grouping if all of the pollutant-emitting activities at such source or group of sources on contiguous or adjacent properties belong to the same major group (i.e., all have the same two-digit code) as described in the Standard Industrial Classification Manual, 1987.

1. A major source under Section 112 of the Act, is defined as:

a. For pollutants other than radionuclides, any stationary source or group of stationary sources located within a contiguous area and under common control that emits or has the potential to emit, in the aggregate, 10 tons per year (tpy) or more of any hazardous air pollutants, or such lesser quantity as the Administrator may establish by rule,

b. For radionuclides, major sources shall have the meaning specified by the administrator by rule;

2. A major stationary source of air pollutants that directly emits, or has the potential to emit, 100 tpy or more of any air pollutant under the Clean Air Act (including any major source of fugitive emissions of any such pollutant). The fugitive emissions of a stationary source shall not be considered in determining whether it is a major source unless the source belongs to one of the following categories of stationary sources:

a. Coal cleaning plants (with thermal dryers),

b. Kraft pulp mills,

c. Portland cement plants,
d. Primary zinc smelters,
e. Iron and steel mills,
f. Primary aluminum ore reduction plants,
g. Primary copper smelters,
h. Municipal incinerators capable of charging more than 250 tons of refuse per day,
i. Hydrofluoric, sulfuric or nitric acid plants,
j. Petroleum refineries,
k. Lime plants,
l. Phosphate rock processing plants,
m. Coke oven batteries,
n. Sulfur recovery plants,
o. Carbon black plants (furnace process),
p. Primary lead smelters,
q. Fuel conversion plants,
r. Sintering plants,
s. Secondary metal production plants,
t. Chemical process plants,
u. Fossil-fuel boilers (or combination thereof) totaling more than 250 million British thermal units per hour heat input,
v. Petroleum storage and transfer units with a total storage capacity exceeding 300,000 barrels,
w. Taconite ore processing plants,
x. Glass fiber processing plants,
y. Charcoal production plants,
z. Fossil-fuel-fired steam electric plants of more than 250 million British thermal units per hour heat input, or
aa. All other stationary source categories regulated by a standard promulgated under Section 111 or 112 of the Act, but only with respect to those air pollutants that have been regulated for that category,

3. Any stationary source with the potential to emit 100 tons per year or more of volatile organic compounds or oxides of nitrogen.

"Malfunction" means any sudden and unavoidable failure of air pollution control equipment or process equipment, or the failure of a process to operate in a normal or usual manner; however, such failures that are caused entirely or in part by poor maintenance, careless operation, or any other preventable improper function or preventable equipment breakdown shall not be considered a malfunction.

"Mechanical fuel-burning equipment" means fuel-burning equipment incorporating means by which fuel is mechanically introduced into the combustion chamber.

"Minor stationary source" means any stationary source that is not a major stationary source and is required to obtain a construction permit, in accordance with the provisions of Sections 10.56.020 through 10.56.070.

"Mist" means a suspension of any finely divided liquid in any gas or atmosphere.

"Modification" means any physical change in, or change in the method of operation of, a stationary source which increases the amount of any air pollutant emitted by such source or which results in emissions of any air pollution previously not emitted.

"National Emission Standard for Hazardous Air Pollutant Sources (NESHAPS)" means any stationary source for which a national emission standard for hazardous air pollutants has been published in the Code of Federal Regulations.

"New Source Performance Standards (NSPS) Source" means any stationary source containing a facility for which the construction, modification or reconstruction commenced after the date the standard of performance for new stationary sources was published in the Code of Federal Regulations.

"Nonattainment area" means a geographical area which is shown by monitored data or which is calculated by air quality modeling (or other methods determined by the director to be reliable and which are approved by the Federal Environmental Protection Agency) to exceed any national ambient air quality standard for any air pollutant.

"Opacity" means the degree to which emissions reduce the transmission of light and obscure the view of an object in the background.

"Open burning" means any fire from which the products of combustion are emitted directly into the open air without passing through a stack or chimney.

"Particulate matter" means any airborne finely divided solid or liquid material with an aerodynamic diameter smaller than one hundred micrometers.

"Particulate matter emissions" means all finely divided solid or liquid materials, other than uncombined water, emitted to the ambient air as measured by applicable reference methods, or an equivalent or alternative method specified in Title 40, Code of Federal Regulations, Chapter 1, as the same may be amended or recodified.

"Permitted allowable emission" means the emission rate of a source calculated at full design capacity while operating eight thousand seven hundred sixty hours per year or an allowable emission rate specified in a legally enforceable construction or operating permit.

"Permit unit" means any article, machine or process equipment or other contrivance of which air pollutants emanate or are emitted. A permit unit is any singular continuous operation.

"Person" means any individual, natural person, trustee, court-appointed representative, syndicate, association, partnership, firm, club, company, corporation, municipal corporation, city, county, municipality, district or other

political subdivision, department, bureau, agency or instrumentality of federal, state or local government, or other entity recognized by law as the subject of rights and duties, and any officer, agent or employee thereof. The masculine, feminine, singular or plural is included in any circumstances.

"PM10" means particulate matter with an aerodynamic diameter less than or equal to a nominal ten micrometers as measured by a reference method based on Appendix J of Title 40, Code of Federal Regulations, Part 50, as the same may be amended or recodified, or by an equivalent method designated in accordance with Part 53 of Title 40, Code of Federal Regulations, as the same may be amended or recodified.

"PM10 emissions" means finely divided solid or liquid material, with an aerodynamic diameter less than or equal to a nominal ten micrometers emitted into the ambient air as measured by an applicable reference method.

"Potential emissions" means the maximum capacity of a stationary source to emit a pollutant under its physical and operational design. Any physical or operational limitation on the capacity of the source to emit a pollutant, including air pollutant control equipment and restrictions on hours of operation or on the type or amount of material combusted, stored or processed shall be treated as part of its design only if the limitation or the effect it would have on emissions is legally enforceable. Secondary emissions do not count in determining the potential to emit of a stationary source unless otherwise provided in the metropolitan health department, pollution control division's regulation No. 13, "Part 70—Operating Permit Program."

"Prevention of Significant Deterioration (PSD)" means the duty to preserve air quality in the manner prescribed in Part C, Sections 160, et seq., of the Clean Air Act of 1977, as codified in 41 USCA 7470 through 7479, as amended.

"Process equipment" means any equipment, device or contrivance for changing any materials whatsoever or for storage or handling of any materials, the use or existence of which may cause any discharge of air pollutants into the open air but not including that equipment specifically defined as "fuel-burning equipment" or "incinerator" in this section.

"Process weight" means the total weight of all materials introduced into any specific process that may cause any emission of particulate matter, but excluding liquid and gaseous fuels and combustion air.

"Refuse" means and is the inclusive term for solid waste products which are composed wholly or partly of such materials as garbage, sweepings, cleanings, trash, rubbish, litter, industrial solid waste or domestic solid waste, trees or shrub leaves, limbs, trunks, roots or droppings or trimmings, grass clippings, brick, plaster or other waste resulting from the demolition, alteration or construction of buildings or structures, accumulated waste material, cans, containers, tires, junk or other such substances which may become a nuisance.

"Regulated pollutant" means each of the following:

1. Nitrogen oxides or any volatile organic compound;

2. Any pollutant regulated under Section 111 or 112 of the Clean Air Act as amended;

3. Any pollutant for which a national primary ambient air quality standard has been promulgated; and,

4. Any Class I or Class II substance listed pursuant to Section 692 of the Clean Air Act as amended.

"Ringlemann Chart" means the chart published and described in the U. S. Bureau of Mines Information Circular 8333.

"Smoke" means small gasborne or airborne particles resulting from combustion operations and consisting of carbon and ash and other matter present in sufficient quantity to be observable.

"Source" means any property, real or personal, which emits or may emit any air pollutant.

"Stack" means any conduit, duct, vent, flue or opening of any kind whatsoever arranged to conduct any products to the atmosphere. Such term does not include breeching.

"Standard conditions" means a gas temperature of sixty-eight degrees Fahrenheit (twenty degrees centigrade), and a gas pressure of 29.92 inches mercury absolute.

"Stoker" means any mechanical device that feeds solid fuel uniformly onto a grate or hearth within a furnace.

"Total suspended particulate" means particulate matter as measured by the method described in Appendix B of Title 40, Code of Federal Regulations, Part 50, as the same may be amended or recodified.

"Uniform Administrative Procedures Act" means Tennessee Code Annotated, Title 4, Chapter 5 (T.C.A. § 4-5-101 et seq.). The term "agency" as used in the Uniform Administration Procedures Act shall also include the metropolitan board of health and the metropolitan health department.

"Volatile Organic Compounds (VOC)" means volatile organic compound as defined by Title 40, Code of Federal Regulation, Part 51, Subpart F. (Ord. 96-584 § 1, 1996; Ord. 95-84 § 1(a), (b), (c), 1995; Ord. 94-1161 § 1, 1994; Ord. 93-790 § 1, 1993; prior code § 4-1-1)

Article I. Administration and Enforcement

10.56.020 Construction permits.

A. 1. It is unlawful for any person to install, erect, construct, reconstruct, alter, or add to, or cause to be installed, erected, constructed, reconstructed, altered or added to, any fuel-burning equipment, incinerator, process equipment, control device, or any equipment pertaining thereto, or any stack or chimney connected therewith, or to make or cause to be made any alteration or repairs which increases the amount of any air contaminant emitted by such source or which results in the emission of any air contaminant not previously emitted until application for a construction permit has been filed with the metropolitan health department and plans and specifications applicable to the work have been submitted to the director and a construction permit issued by him for such construction, installations, alterations or repairs. Applications for a construction permit shall be filed in duplicate in the offices of the director on forms adopted by the director and supplied by the metropolitan health department along with a copy of plans and specifications. The director shall not grant a construction permit to any source which does not comply with the provisions of the New Source Review Regulations as adopted by the board. If the director determines, on the basis of information available to him, that such source does, or in all likelihood will, operate in violation of this chapter, or that the source will operate so as to prevent attainment or maintenance of any national ambient air quality standard, he shall either impose conditions on the face of the construction permit that in his opinion will promote compliance with this chapter, and/or attainment and maintenance of any national ambient air quality standard, or he shall deny the application for the construction permit. At the request of the director, the applicant shall provide information necessary for the director to make the determination of whether the source does, or in all likelihood will, operate in violation of this chapter, or whether the source will operate so as to prevent attainment or maintenance of any national ambient air quality standard. For a major source, such information required may include a source impact analysis and air quality analysis as set out in regulations adopted by the board. This section shall not apply to fuel-burning equipment used exclusively for heating less than three dwelling units, or to gas, or fuel oil equipment of five hundred thousand BTU input or less or to internal combustion engines.

2. In addition to any other remedies available on account of the issuance of an order prohibiting construction, installation, or establishment of any fuel-burning equipment, incinerator, process equipment, or control devices, and prior to invoking any such remedies, the person aggrieved thereby shall, upon request in accordance with the provisions of this chapter and the rules and regulations adopted by the board be entitled to a hearing. Such hearing shall be conducted pursuant to the contested cases provisions of the Uniform Administrative Procedures Act, Tennessee Code Annotated, Title 4, Chapter 5, Part 3 (T.C.A. § 4-5-301 et seq.).

3. The absence or failure to issue a rule, regulation or order pursuant to this section shall not relieve any person from compliance with any emission control requirements or with any other provision of law.

B. Maintenance or repairs or alterations which are minor in scope or do not change the capacity of any fuel-burning equipment, incinerator, process equipment and which do not involve any change in the method of combustion or materially affect the emission of smoke, dust, gases, fumes, or other air contaminants therefrom may be made without placing an application for construction permit with the metropolitan health department. Emergency repairs may be made prior to the applications in the event an emergency arises and serious consequences would result if the repair were to be deferred. When such repair is made in an emergency, the application as required by this section shall be filed in the office of the director within ten days after the start of such work.

C. The plans and specifications, submitted pursuant to this section, concerning any fuel-burning equipment, incinerator or process equipment shall show the type, form and dimensions of all equipment and appurtenances thereto and stacks and ducts, together with the description and dimensions of the building or part thereof in which such equipment is to be located, the amount of work or the amount of heating to be done by such equipment and all provisions for securing complete combustion of the fuel or refuse and for reducing or controlling emission of air contaminants. Such plans and specifications shall also show the character of the fuel or refuse to be burned or process material, the maximum quantity to be burned per hour, and the operation requirements of the equipment. The plans and specifications shall show that the room or premises in which fuel-burning equipment or incinerator is to be located is provided with adequate ventilation to provide sufficient air for the combustion process and for the safety of people.

D. The plans and specifications submitted pursuant to this section shall be prepared under the direction of, or approved by and bear the seal of, a professional engineer registered in this state or be a graduate of an accredited engineering school and experienced in his field of endeavor.

E. The requirement for filing plans and specifications involving the installation, erection, construction, reconstruction, alteration, or repair of or addition to, any fuel-burning equipment, incinerator, process equipment, or the building of pilot plants or processes to be used in or to become part of a secret process is suspended upon the filing with the metropolitan health department, in lieu of the filing of plans and specifications, of an affidavit of a responsible person to the effect that such equipment or process is to be so used. Such person may be required by the board to furnish bond or other proof of financial responsibility. The suspension of the filing of such plans and specifications shall in no way relieve the person or persons responsible for the secret process from complying with all other provisions of this chapter.

F. If the installation, erection, construction, reconstruction, alteration, addition or repair is not started within one year of the date of issuance of a construction permit or any extended period granted in writing by the director, the construction permit shall become void.

G. Any equipment covered by this section which is installed, erected, constructed, reconstructed or altered without making application for a construction permit to the department of health and receiving this permit as provided herein may be sealed by the director with the approval of the board, the seal to remain in effect until all provisions of this chapter have been complied with. This remedy is not deemed to be the exclusive remedy.

H. No new source shall be granted a construction permit unless the new source complies with the Metropolitan Zoning Code for the use of the property on which the new source is to be constructed. For purposes of legal nonconforming uses, in accordance with Tenn. Code Ann. § 13-7-208, this requirement shall not apply. The receipt of a construction permit from the metropolitan health department shall not be construed to indicate approval of the strength or safety of any equipment or to indicate compliance with the requirements of the Building Code of Metropolitan Nashville and Davidson County or any other ordinance thereof. Neither shall it relieve anyone from the responsibility to comply fully with the applicable provisions of this Code, nor any other requirement(s) imposed by statute, rule or regulation of the Metropolitan Government of Nashville and Davidson County, Tennessee, the State of Tennessee or the United States Government.

I. New and modified sources having obtained a valid construction permit in accordance with this section may operate under the construction permit for the period of time specified within the permit which shall not exceed one hundred eighty days provided that the director is notified of the date of start-up. Such notification must be submitted in writing within five working days of the date of start-up of the new or modified source.

J. Results of any compliance testing required as a condition of a construction permit must be conducted in accordance with Section 10.56.290, Measurement of Emissions, and Section 10.56.300, Testing Procedures, of this chapter and the test results submitted to the director within the time period specified on the permit. Failure to demonstrate compliance with the allowable emission standards or any other condition shown on the construction permit shall constitute sufficient grounds for the director to require changes in the installation before an operating permit can be granted. Responsibility for demonstrating proof of compliance including all expenses incurred in conducting the required compliance tests shall be borne by the owner or operator of the affected facility.

K. The director or his authorized representative shall have the right to enter the premises to observe any compliance tests and to inspect the installation and operation of any equipment for which a construction permit was issued.

L. Any application for a construction permit for a major source received by the director is subject to objection and comment by the Administrator under the provisions of 42 U.S.C. §7661 d., as amended. Therefore, no permit shall be final until the time for objection by the Administrator has expired.

M. Any failure to act or inaction by the director within eighteen months after receipt of a complete application for a construction permit may considered final action for the purpose of any appeal to the Davidson County Chancery Court under Tennessee Code Annotated §27-8-101, et seq., and Tennessee Code Annotated §27-9-101, et seq.

N. The director shall, on a monthly basis, notify the public, by advertisement in a newspaper or newspapers of general circulation within the metropolitan government area, of the applicants seeking to obtain a permit to construct or modify an air pollution source. This notice shall specify the location of the proposed source of modification, the type of source or modification, and shall provide the opportunity for public comments. The public shall have thirty days from the date of advertisement to submit written comments to the director. (Ord. BL2016-234 §§ 1, 2, 2016; Ord. 94-1161 § 2, 1994; Ord. 93-790 § 2, 1993; prior code § 4-1-16(a))

10.56.040 Operating permit.

A. After the construction permit has been issued and it is demonstrated to the satisfaction of the director that the fuel-burning equipment, incinerator, process

equipment, control device or any equipment pertaining thereto can be operated in compliance with this chapter, an application for an operating permit shall be filed in duplicate in the office of the director on forms adopted by the director and supplied by the metropolitan health department. If the director determines that the source does or will operate in violation of this chapter, or if the source will operate so as to prevent attainment or maintenance of any lawful national ambient air quality standard, he shall either impose conditions on the face of the operating permit that, in his opinion, will promote compliance with this chapter, or he shall deny the application for an operating permit. The operating permit shall be kept posted on or near the installation for which it was issued. The operating permit shall properly iden-

tify the equipment to which it pertains and shall specify the class of fuel and/or type of raw material used, for which the equipment and appurtenances have been designed or which has been successfully used in the operating test. The owner or his agent shall be responsible for notifying the director that equipment for which a construction permit has been issued, has been tested and is ready for permanent operation. With such notification, the owner shall submit to the director test and operation data, as required by the director, as evidence that the equipment will operate in compliance with all provisions of this chapter. The director, with the approval of the board, is authorized to seal the equipment in operation for which an operating permit has not been obtained, as required by this section.

B. The operating permit shall be issued for a one-year period or for such longer period as the director may designate but not to exceed five years. Applications for renewal of the operating permit shall be made in writing upon forms furnished by the metropolitan health department and shall be made not less than sixty days prior to expiration of the certificate for which renewal is sought except as otherwise provided in the metropolitan health department, pollution control division's regulation No. 13, "Part 70—Operating Permit Program." Disclosures of information, tests and other prerequisites to the issue of a construction permit, temporary operating permit, or operating permit may be required by the director prior to the renewal of an operating permit.

C. Any person operating a source constructed on or before the effective date of this chapter shall file an application for an operating permit. An application for an operating permit shall be filed in duplicate in the office of the director on forms furnished by the metropolitan health department.

D. In addition to the requirements of this section, the metropolitan board of health, by regulation duly adopted in accordance with Section 10.56.090 of this chapter, may specify additional permitting requirements.

E. Any application for an operating permit for a major source received by the director is subject to objection and comment by the administrator under the provisions of 42 U.S.C. §7661 d., as amended. Therefore no permit can be final until the statutory time for objection by the Administrator has expired.

F. Any major source may opt out of the provisions of the metropolitan health department, pollution control division's Regulation No. 13, "Part 70 Operating Permit Program," by limiting their potential to emit such that they are below the applicable threshold. In order to exercise this option, the following provisions must be met:

1. The source must agree in writing to be bound by a permit which specifies the more restrictive limit and to be subject to detailed monitoring, reporting and recordkeeping requirements that prove the source is in compliance with the applicable permit.

2. The permit limitations, controls, and other requirements imposed by the permits will be at least as stringent as any other applicable limitations and requirements contained in the State Implementation Plan enforceable under the State Implementation Plan.

3. The permit limitations, controls, and other requirements imposed by the permit shall be permanent, quantifiable, and enforceable. If the source decides to increase its potential to emit, the source must meet the requirements of Section 10.56.020.

4. A public notice and opportunity for public comments on any application seeking a permit with limited potential to emit shall be given in a newspaper or newspapers of general circulation within the metropolitan government area. The public shall have thirty days from the date of notice to submit written comments.

5. The director shall provide to the Administrator a copy of each draft and final permit. The draft permit must be submitted to the Administrator prior to the public notice as outlined in subsection (F)(4) of this section. The final permit shall be submitted to the Administrator within thirty days of issuance.

G. Any failure to act or any inaction by the director within eighteen months after receipt of a complete application for an operating permit may be considered final action for the purpose of any appeal to Davidson County Chancery Court under Tennessee Code Annotated § 27-9-101, et seq., or Tennessee Code Annotated § 4-5-322. (Ord. 95-84 § 2, 1995; Ord. 94-1161 § 3, 1994; Ord. 93-790 § 4, 1993; prior code § 4-1-16(c))

10.56.050 Exemptions.

A. The following sources are exempt from the provisions of this chapter unless otherwise specified by the director:

1. Fuel burning equipment used exclusively for heating less than three dwelling units;

2. Natural gas or fuel oil burning equipment of less than five hundred thousand Btu input per hour. This exemption shall not apply when the total capacity of such equipment operated by one person exceeds 2.0 million Btu input per hour;

3. Any process emission source emitting less than 0.1 pounds per hour of nonhazardous particulate matter;

4. Equipment used on farms for soil preparation, tending or harvesting of crops, or for preparation of feed to be used on the farm when prepared;

5. Residential barbecue pits and cookers;

6. Wood smoking operations used to cure tobacco in barns; and

7. Mobile sources, such as automobiles, trucks, busses, locomotives, airplanes and boats.

B. Notwithstanding the exemptions granted in Paragraph A of this section, no person shall discharge, from any source whatsoever, such quantities of air contaminants or other materials which cause or have a tendency to cause, injury, detriment, annoyance, or adverse effect to the public.

C. The sources listed below are exempt from the permitting requirements of Sections 10.56.020 and 10.56.040 of this chapter unless specifically required to do so by the director. However, the emissions from these sources shall comply with the remaining provisions of this chapter and with any applicable regulation adopted by the metropolitan board of health in accordance with the provisions of Section 10.56.090 of this chapter.

1. Fuel burning equipment that is fired with liquid petroleum gas, natural gas, or No. 2 fuel oil with a heat input of less than 10 million Btu per hour where the combined total heat input rate at the facility does not exceed 20 million Btu per hour. This exemption does not apply to gas-fired turbines;

2. Equipment used exclusively to store or hold dry natural gas or liquid petroleum gas;

3. Laboratory equipment used exclusively for chemical and physical analysis, including ventilating and exhaust systems for laboratory hoods used for air contaminants other than carcinogenic or radioactive air pollutants;

4. Brazing, soldering, or welding equipment, except those which emit lead or use lead compounds;

5. Repairs or maintenance of a source regulated by an emission standard provided that no structural changes are involved such as replacement or installation of any new process, fuel burning, incineration or air pollution control equipment;

6. Alkaline/phosphate washers and associated gas-fired burners, provided that no volatile organic compounds are present in the phosphatizing or wash solutions;

7. All gas or No. 2 fuel-oil-fired infrared, or electric ovens which have no emissions other than products of fuel combustion except for those regulated by Regulation No. 5, Standards of Performance for new Stationary Sources, or have a heat rate input of more than 10 million Btu per hour;

8. Surface coating operations which do not exceed a combined total usage of more than forty-five gallons per month of coatings, thinners and cleanup solvents at one location;

9. Any process emitting less than 0.1 pounds per hour of any nonhazardous air pollutant except for those regulated by Regulation No. 5, Standards of Performance for New Stationary Sources; and

10. Tank trucks and barges.

D. Notwithstanding any exemption granted in this section because of size or production rate, an exempted source must be listed in the application for a permit to be issued in accordance with Regulation No. 13, Part 70 Operating Permit Program.

E. The exemptions in this section shall not apply:

1. To any source regulated under Section 111 or 112 of the Act; or

2. To any of the following hazardous air pollutants:

2-Acetylaminofluorene
Acrolein
Acrylamide
Acrylic acid
Acrylonitrile
Arsenic compounds
Benzidine
Beryllium compounds
Bis (chloromethyl) ether
1, 3-Butadine
Cadmium compounds
Chlordane
2-Chloroacetophenone
Chromium compounds
Chloromethyl methyl ether
Coke oven emissions
Diazomethane
Dibenzofuran
1, 2-Dibromo-3-chloropropane
Dichloroethyl ether (Bis (2-Chloroethyl) ether)
Dimethylcarbamoyl chloride
1, 2-Diphenylhydrazine
Ethylen dibromide
Ethylenimine (Aziridine)
Ethylene oxide
Heptachlor
Hexachlorobenzene
Hexachlorocyclopentadiene
Hydrazine
Manganese compounds
Mercury compounds
Methylene Diphenyl diisocyanate (MDI)
Methyl hydrazine
Methyl isocyanate
Nickel compounds

N-Nitrosodimethylamine
N-Nitroso-n-methylurea
Parathion
Phosgene
Phosphine
Phosphorus
1, 2-proplenimine
2, 3, 7, 8-Tetrachlorodibenzo-p-dioxin
Toxophene (Chlorinated camphene)
Vinyl chloride

F. Notwithstanding any exemption in this Section, any application submitted in accordance with Section 10.56.020 and Section 10.56.040 of this chapter shall include all emission sources and quantify emissions if needed to determine major source status, to determine compliance with an applicable requirement, and/or the applicability of any applicable requirement such as NSPS, NESHAPS, or MACT standards, etc., or in calculation of permit fees in accordance with Section 10.56.080. (Ord. 95-84 § 3, 1995; Ord. 93-790 § 5, 1993)

10.56.060 Transferability of permit.

Any permit issued in accordance with the provisions of this chapter is not transferable from one person to another person nor from one facility to another facility without prior approval from the director. (Prior code § 4-1-16(d))

10.56.070 Suspension or revocation of permit.

The director may suspend or revoke either a construction or an operating permit if the permit holder fails to comply with the provisions, stipulations or compliance schedule provided in the permit. (Prior code § 4-1-16(e))

10.56.080 Permit and annual emission fees.

A. The metropolitan board of health by rule or regulation may prescribe and provide for the payment and collection of reasonable fees for the issuance of all permits as specified in Sections 10.56.020 through 10.56.070. The fee schedule shall be sufficient to cover all reasonable (direct and indirect) costs required to administer the permit program of this chapter. All fees collected by virtue of this chapter shall be deposited regularly with the metropolitan treasurer in a separate revenue account and shall be used to fund the operation of the air pollution division of the metropolitan health department.

B. Regulated pollutants for determining emission fees shall mean the annual permitted allowable emissions up to four thousand tons per regulated pollutant, as defined by subsection C of this section, of each of the following pollutants:

1. Volatile Organic Compounds;
2. Any pollutant regulated under Section 111 or 112 of the Clean Air Act as amended;
3. Any pollutant for which a national primary ambient air quality standard has been promulgated, except carbon monoxide; and
4. Nitrogen oxides.

C. Permitted allowable emissions for determining permit fees shall mean the emission rate of a source calculated at full design capacity operating eight thousand seven hundred sixty hours per year or an allowable emission rate specified in a legally enforceable permit condition.

D. Construction Permit.

1. Any person making application to the metropolitan health department for a construction permit in accordance with the provisions of Section 10.56.020 shall pay an initial filing fee of twenty-five dollars per ton for the potential emissions or the source's proposed permitted annual allowable emissions of each regulated pollutant or one hundred dollars, whichever is greater. This filing fee shall not be refunded if a permit is denied or if the application is withdrawn, nor shall it be applied to any subsequent application.
2. All fees shall be included with the permit application. Fees shall be paid by check made payable to the metropolitan department of health.
3. Any person constructing a source without a construction permit in addition to the above initial filing fee shall pay a penalty of fifty percent of the initial filing fee amount, plus interest on the fee amount computed in accordance with Section 6621(a)(2) of a the Internal Revenue Code of 1986.

E. Operating Permit and Annual Emission Fee.

1. Any person making application to the metropolitan health department for an operating permit in accordance with the provisions of Section 10.56.040 shall pay the applicable fee in accordance with the following schedule:

a. Asbestos demolition/renovation removal permits, one hundred dollars;

b. Air curtain destructor permits, one hundred dollars;

c. Any owner or operator of any other source required to have an operating permit in accordance with the provisions of Section 10.56.040 must pay an annual emission fee of twenty-five dollars per ton, as adjusted pursuant to the criteria set forth in subsection (E)(1)(e)

below of permitted allowable emissions of each regulated pollutant as defined in subsection B of this section, or one hundred dollars, whichever is greater;

d. The annual emission fee shall be calculated as the sum of permitted allowable emissions of all regulated pollutants, except for carbon monoxide, at a source;

e. The twenty-five dollars per ton per year used to calculate the annual emission fee shall be adjusted each year by the percentage, if any, by which the Consumer Price Index for the most recent calendar year ending before the beginning of such year exceeds the Consumer Price Index for calendar year 1989.

The Consumer Price Index for any calendar year is the average of the Consumer Price Index for all urban consumers published by the United States Department of Labor, as of the close of the twelve-month period ending on August 31st of each calendar year.

The revision of the Consumer Price Index which is most consistent with the Consumer Price Index for the calendar year 1989 shall be used;

f. The annual emission fee is due and payable to the metropolitan department of health in full by March 31st of the year following the year the emissions occurred. Any source failing to pay the annual emission fee by March 31st shall pay in addition a penalty of fifty percent of the annual emissions fee, plus interest on the fee amount as computed by the director in accordance with Section 6621(a)(2) of the Internal Revenue Code of 1986;

g. The appropriate annual emission fee for a new source that has not been in operation a full calendar year shall be determined by the following equation:

$$\frac{\text{Number of months in operation}}{12} \times \text{Annual emission fee based on permitted allowable emission} = \text{Emission fee}$$

h. A source owner or operator of the opinion that their annual emission fee is improper or incorrect may request a meeting with the director to discuss the annual emission fee assessment. This must be requested in writing at least thirty days prior to the due date of the annual emission fee. This meeting will be for the purpose of explaining to the source owner or operator the computation methods used to determine the annual emission fee and to provide the source an opportunity to explain why the assessment is incorrect. At this meeting, the source may restructure its fee liability through a reduction in permitted allowable emission rates.

Any owner or operator who disagrees with the calculation or the applicability of the fee may petition the board for a hearing.

F. Permit Modification. Any person making application to the metropolitan health department for the modification of a permit shall be subject to the fee outlined in subsection (D)(1) of this section. No fee is required for modification of a permit to correct clerical, typographical or calculation errors.

G. No permit will be issued or modified until the appropriate filing fee has been received by the department. (Ord. 96-584 § 2, 1996; Ord. 95-84 § 4(a), (b), 1995; Ord. 94-1162 § 1, 1994; Amdt. 1 to Ord. 93-790, 9/21/93; Ord. 93-790 § 6, 1993)

10.56.090 Board—Powers and duties.

A. 1. There is imposed upon the board in addition to those functions and duties set forth in Article 10, Chapter 1, of the Charter of the metropolitan government, the authority, power and duty to adopt, promulgate and enforce such rules and regulations to carry out the provisions of this chapter which the board deems necessary in order to achieve and maintain such levels of air quality as will protect human health and safety and to the greatest degree practical, prevent injury to plant life and property, foster the comfort and convenience of the inhabitants of the metropolitan government area and promote the economic and social development of the metropolitan government area; provided, that such rules and regulations shall not conflict with any laws of the state, the Charter of the metropolitan government or any ordinance of the metropolitan government, nor shall such rules and regulations exceed the limits of authority granted to the board in this chapter.

2. The director shall recommend to the board such rules and regulations as he considers necessary consistent with the general intent and purpose of this chapter to prevent, abate and control air pollution. Thereupon, the board shall fix and hold a public hearing, as provided herein, with respect to the rules or their amendments, and the board may approve or reject such recommended rules or amendments, in whole or in part, or it may modify and approve them as so modified. Thereafter, the board may amend or add to the rules and regulations, on recommendation of the director, or on its own initiative, but only after a public hearing on the proposed amendments.

3. Such rules and regulations or any amendments thereto shall be approved by the director of law as to legality, and the same shall then be filed with the secretary of the board and the metropolitan clerk. After such rules and regulations or any amendments thereto of the board have been so adopted in the manner herein provided, such rules and regulations shall have the force and effect of law.

B. In exercising its powers to prevent, abate and control air pollution, the board shall have the following powers and duties:

1. Develop and prepare a general comprehensive plan for the prevention, control and abatement of air pollution recognizing varying requirements for different areas of the metropolitan government;

2. Establish, modify or amend, after public hearing, a system of permits applicable to installation or modification of facilities capable of becoming a source of air pollution;

3. Establish, modify or amend, without hearing, rules and regulations with respect to procedural aspects of:

a. Hearings,

b. Filing of reports and orders,

c. Issuance of permits, and

d. All other matters not specifically requiring a hearing;

4. Require that any person whom the board has reason to believe is or may be about to be causing or contributing to air pollution to furnish the board pertinent information required by it in the discharge of its duties under this chapter; provided, that no such person shall be required to disclose any secret formulas, processes or methods used in any manufacturing operation carried on by him or under his direction;

5. Cause to be instituted in a court of competent jurisdiction, legal proceedings to compel compliance with any provision of this chapter or with any order or determination issued by the board;

6. Collect and disseminate information relative to air pollution, encourage voluntary cooperation of affected persons or groups in preserving and restoring a reasonable degree of air purity and advise, consult and cooperate with other agencies, persons or groups in matters pertaining to air pollution;

7. Prescribe and provide, at its discretion, for payment and collection of reasonable fees for the review of plans and specifications required to be submitted pursuant to this chapter. Such fees shall be deposited with the metropolitan treasurer and shall be used to supplement the budget of the metropolitan health department;

8. Adopt, promulgate and enforce such other rules and regulations which the board deems necessary to carry out the provisions of this chapter; provided, that nothing in this chapter shall be deemed to grant the board any jurisdiction or authority with respect to air pollution existing solely within commercial or industrial plants, works or shops or to affect the relationship between employers and employees with respect to or arising out of any condition of air pollution, so long as such internal pollution does not affect the ambient air outside the plant, works or shops.

C. In addition to any other power granted to it by this chapter, the board is granted the authority to assess a civil penalty in an amount not to exceed the sum of twenty-five thousand dollars per day for each day of violation against any person in violation of this chapter or of any regulation adopted pursuant to this section.

1. The assessment of a civil penalty shall be made by the director against any person determined to be in violation of this chapter or of any regulation adopted by the board pursuant to this section. Notice of such assessment shall be provided by certified mail, return receipt requested.

2. Any person against whom an assessment is made by the director may appeal to the board by filing a request with the director for review by the board. Request for review by the board must be made in writing and filed within thirty days of the receipt of the assessment and shall state with particularity the grounds for the appeal. Any such appeal shall stay the effect of the assessment.

3. Failure to appeal the assessment within thirty days shall be a waiver of the right to appeal and be deemed as consent to the assessment which shall become final upon approval by the board.

4. Any assessment of a civil penalty appealed to the board shall be heard pursuant to the provisions of the contested cases provisions of the Uniform Administrative Procedures Act, Tennessee Code Annotated, Title 4, Chapter 5, Part 3 (T.C.A. § 4-5-301 et seq.). The assessment of civil penalty shall be upheld unless the preponderance of the evidence shows that the assessment was unlawfully levied or unreasonably severe.

5. No assessment of civil penalty, whether brought to the board by appeal or for confirmation by the director, shall be final until such assessment is approved by the board at any regular meeting or duly called special meeting. The board may alter or modify the terms of any civil penalty, but any increase in the amount of civil penalty or which otherwise imposes a greater burden upon the person against whom the penalty is assessed shall not become final until such person receives written notice thereof and is provided the right to petition the board for modification of such assessment in the same manner as an appeal from assessment of civil penalty by the director.

6. The director may enter into consent decrees with any person in violation of this chapter or of any regulation adopted pursuant to this chapter, and, after approval by the board shall have the same effect and be enforceable in the same manner as a civil penalty.

7. The board may cause an action to be filed with the chancery court for Davidson County for judgment to enforce any final assessment of civil penalty or consent decree and for any execution of any judgment so obtained.

8. In assessing a civil penalty, the director and the board may consider all factors listed in Section 10.56.100, and may include any expenses and actual damages incurred by the metropolitan government in investigating, removing, correcting or cleanup of the effects of the violation, including loss or destruction of plant or animal life. (Ord. 94-1161 § 4, 1994; Ord. 89-814 § 1, 1989; prior code § 4-1-19)

10.56.100 Board—Consideration of facts and circumstances.

In the exercise of its powers to prevent, abate and control air pollution, the board shall give due consideration to such pertinent facts and circumstances, including, but not limited to:

A. The character and degree of injury to, or interference with, the protection of the health, general welfare and physical property of the residents of the metropolitan government area;

B. The social and economic value of the air pollutants source;

C. The degree of detrimental effect of the air pollutants upon the achievement of the national ambient air quality standard for such pollutant;

D. The technical practicability and economic reasonableness of reducing or eliminating the emission of such air pollutants;

E. The suitability or unsuitability of the air pollution source to the area in which it is located;

F. The economic benefit gained by the air pollutants source through any failure to comply with the provisions of this chapter and regulations adopted pursuant to this chapter. (Ord. 89-814 § 2, 1989; prior code § 4-1-20)

10.56.110 Rules and regulations—Hearings procedure.

A. No standard, rule or regulation shall be adopted by the board pursuant to Section 10.56.090, and no amendment, repeal or modification thereof, shall take effect except after a public hearing has been held regarding the matter in question. At the discretion of the board, the hearing may be conducted before the board or a hearing officer, as defined under the Uniform Administrative Procedures Act, Tennessee Code Annotated, Section 4-5-301, designated by the board for such purpose.

B. Hearings shall be conducted in the following manner:

1. A public notice of any and all public hearings pursuant to this chapter shall be given at least thirty days prior to the scheduled date of the hearing by public advertisement on three consecutive days in a newspaper or newspapers of general circulation within the metropolitan government area, giving the date, time, place and purpose of such hearing.

2. At such hearings, opportunity to be heard with respect to the subject thereof shall be given to any interested person. Any interested persons, whether or not heard, may submit, in writing, a statement of their views on the proposed rules and regulations prior to or within seven days subsequent to such hearings.

3. No rule or regulation of the board, or any amendment, repeal or modification thereof, shall be deemed adopted or in force and effect until it shall have been approved, in writing, by at least the majority of the members to which the board is entitled and the same shall have been approved by the director of law as to its legality and a certified copy thereof has been filed with the metropolitan clerk.

4. Any person heard or represented at such hearing or requesting notice shall be given, without charge, written notice of the action of the board with respect to the subject thereof. A reasonable record shall be made and maintained of any such public hearing and the testimony at such hearing may or may not be under oath, at the discretion of the board. Copies of the proceedings at the public hearing shall be made available only upon the payment of the fee therefor, which fee shall be set by the board of health. (Ord. 94-1161 § 5, 1994; prior code § 4-1-21)

10.56.120 Complaint notice—Hearings procedure.

A. In addition to the other remedies available, the director is authorized to file with the board a complaint of an alleged violation, and the board may cause to have issued and served upon the person complained against a formal notice of complaint, which shall specify the provision of this chapter of which such person is said to be in violation and a statement of the manner and extent to which, if applicable, such person is said to violate this chapter, and shall require the person complained against to answer the charges of such formal complaint at a hearing before the board.

B. Such hearing shall be conducted pursuant to the provisions of the contested cases provisions of the Uniform Administrative Procedures Act, Tennessee Code Annotated, Title 4, Chapter 5, Part 3 (T.C.A. § 4-5-301 et

seq.). (Ord. 94-1161 § 6, 1994; Ord. 93-790 § 9, 1993; prior code § 4-1-22)

10.56.130 Variances—Hearings procedure.

A. Any person seeking a variance from the provisions of this chapter or from the rules and regulations adopted by the board pursuant to this chapter shall do so by filing a petition for variance with the director. The director shall promptly investigate such petition and make recommendation to the board as to the disposition thereof.

B. The board may grant such variance if it finds that:

1. a. The emissions occurring, or proposed to occur, do not endanger or tend to endanger human health or safety, and

b. Compliance with the provisions of this chapter and the rules or regulations from which variance is sought would produce serious hardship without equal or greater benefits to the public;

2. The emissions occurring, or proposed to occur, do not have a serious adverse effect on the quality of the ambient air of Davidson County and of adjacent counties;

3. The owner or operator of the source agrees that upon the expiration of the order granting the variance that he/she will use any new means of emission limitation demonstrated to the satisfaction of the board to be the best available system of continuous emission reduction for the particular source or sources for which the variance is granted;

4. Such new means of emission limitation are not likely to be used unless a petition is granted under this subsection;

5. Such new means of emission limitation have a substantial likelihood of:

a. Achieving greater continuous emission reduction than the means of emission limitation which, but for such variance, would be required, or

b. Achieving an equivalent continuous reduction at lower cost in terms of energy, economic or nonair quality environmental impact;

6. Compliance with the source would be impracticable prior to or during the installation of such new means.

C. Upon receiving the recommendation of the director, the board shall grant a public hearing. Such public hearing shall be held not later than sixty days after receipt of a recommendation from the director.

D. Public hearings will be conducted in the following manner:

1. The petitioner and the public shall be given written notice at the earliest practicable time as to the time and place of such hearing.

2. At the discretion of the board, such hearing before a hearing officer may be conducted as defined by the Uniform Administrative Procedures Act, Tennessee Code Annotated, Section 4-5-301, and a complete record of the hearing shall be made for review by the board members.

3. All testimony shall be recorded and may or may not be under oath, at the discretion of the hearing officer. The transcript so recorded shall be made available to the petitioner or any party to the hearing upon the payment of the fee for transcribing such testimony.

4. The board in considering the granting of a variance shall give due consideration to the equities of the petitioner and others who may be affected by granting or denial of the petition.

5. The board may make the granting of a petition for variance contingent upon such other requirements or restrictions on the petitioner as the board may deem appropriate and reasonable, including, but not limited to, the requirement that a performance bond be posted by the petitioner.

6. Any variance granted shall be for a period not to exceed one year, except as hereinafter provided, but may be extended from time to time by the action of the board.

E. Subject to the conditions of subsections A and B of this section, the board may grant a variance on the grounds that there is no practicable means known or available for the adequate prevention, abatement or control of the air pollutant source involved, and, if granted, such variance may remain in effect only until the necessary means for prevention, abatement or control become known and available, and subject to the taking of any substitute or alternate measures that the board may prescribe.

F. If the variance is granted on the grounds that compliance with the particular requirement or requirements from which variance is sought will necessitate the taking of measures which, because of their extent or cost, must be spread over a considerable period of time, it shall be for a period not to exceed such reasonable time as, in the view of the board, is requisite for the taking of the necessary measures. A variance granted on the grounds specified herein shall contain a timetable for the taking of action in an expeditious manner and shall be contained on adherence to such timetable.

G. Upon failure of the board to issue a final order or determination within sixty days after the final argument in any such hearing or within sixty days following receipt of the recommendation of the director when no hearing is held, the petitioner shall be entitled to treat for all purposes such failure to act as a granting of the variance requested.

H. The burden of proof in such hearings shall be upon the petitioner.

I. Nothing in this section, and no variance or renewal thereof granted pursuant hereto, shall be construed to prevent or limit the application of the emergency provisions and procedures of this chapter to any person or his property. (Ord. 94-1161 § 7, 1994; prior code § 4-1-23)

10.56.140 Emergency measures—Hearings procedure.

A. Any other provisions of law to the contrary notwithstanding, if the director finds that a generalized condition of air pollution exists and that it creates an emergency requiring immediate action to protect human health or safety, the director shall order persons causing or contributing to the air pollution to reduce or discontinue immediately the emission of air contaminants.

B. Upon issuance of any such order, the director shall fix a place and time, not later than twenty-four hours thereafter, for a hearing to be held before the board. Such hearing shall be held in conformity with the provisions of Section 10.56.120, insofar as applicable. Not more than twenty-four hours after the commencement of such hearing, and without adjournment thereof, the board shall affirm, modify or set aside the order of the director.

C. In the absence of a generalized condition of air pollution of the type referred to in subsection A of this section, if the director finds that emissions from the operation of one or more air contaminant sources is causing or may tend to cause imminent danger to human health or safety, he may order the person responsible for the operation in question to reduce or discontinue operations immediately, without regard to the provisions of this chapter. In such event, the requirements for hearing affirmance, modification, or setting aside of orders set forth in subsection B of this section shall apply. (Prior code § 4-1-24)

10.56.150 Nuisance declared—Injunctive relief.

A. Any person violating the provisions of this chapter by exhausting into the atmosphere an air contaminant in excess of that permitted by this chapter is declared to be creating a nuisance.

B. The board may cause to be instituted a civil action in any court of competent jurisdiction of injunctive relief to prevent violation of any section of this chapter. (Prior code § 4-1-25)

Article II. Standards for Operation

10.56.160 Ambient air quality standards.

A. The primary ambient air quality standards define levels of air quality believed adequate with an appropriate margin of safety to protect the public health.

B. The secondary ambient air quality standards define levels of air quality believed adequate with an appropriate margin of safety to protect the public welfare from any known anticipated adverse effects of the pollutant.

C. The ambient air quality standards of Table 10.56.160 are applicable throughout Metropolitan Nashville and Davidson County. The ambient air quality standards of Table 10.56.160 shall not be construed or interpreted to allow any significant deterioration of the existing air quality in any area of Metropolitan Nashville and Davidson County. (Ord. 96-584 § 3, 1996; prior code § 4-1-18)

10.56.170 Emission of gases, vapors or objectionable odors.

No person shall cause, suffer, allow or permit any emission of gases, vapors or objectionable odors beyond the property line from any source whatsoever which causes injury, detriment, nuisance or annoyance to any considerable number of persons or to the public, or which causes or has a natural tendency to cause injury or damage to business or property. (Prior code § 4-1-10)

10.56.180 Laundry operations—Dryer and vent pipe requirements.

No person shall operate a laundry, dry cleaning plant or similar operation unless the following conditions are met:

A. All driers shall be equipped with lint filters which will substantially prevent the expulsion of materials harmful to the public.

B. Provision shall be made so that all vent pipes carrying solvent vapor are not directed toward any building openings within twenty feet. (Prior code § 4-1-12)

10.56.190 Controlling wind-borne materials.

A. No person shall cause, suffer, allow or permit the handling, transporting or disposition of any substance or material which is likely to be scattered by the wind, or is susceptible to being wind-borne, without taking adequate precautions or measures to minimize atmospheric pollution.

B. Vehicles carrying the material subject to becoming airborne operating on public streets, roads or highways shall cover their load with a tarpaulin, canvas or other means acceptable to the director.

C. No person shall maintain, cause, permit or allow to be maintained any premises, open area, right-of-way, storage pile of materials, any construction, alteration, demolition or wrecking operation, or any other enterprise which involves any material or substance likely to be scattered by the wind or susceptible to being wind-borne, without applying all such reasonable measures as may be necessary or required to prevent particulate matter from becoming airborne, including, but not limited to, paving, or frequent cleaning of roads, driveways and parking lots, application of dust-free surfaces, or the planting and maintenance of vegetative ground cover.

D. In addition, all parking areas containing spaces for ten or more motor vehicles shall be surfaced with asphalt, concrete, or other hard-surfaced dustless material. (Prior code § 4-1-11)

10.56.200 Sale, use or consumption of solid and liquid fuels.

A. 1. It is unlawful for any person to sell or burn, in any fuel-burning equipment, any solid or liquid fuel containing in excess of two percent sulfur by weight. If such fuel is not reasonably available, an application for exemption may be made to the board, and the board, after considering the factors set forth in this subsection, shall allow exemption from this provision when the applicant demonstrates that their activities do not result in the condition of air pollution as defined in Section 10.56.010.

2. In determining reasonable availability, the factors to be considered by the board shall include, among others: price, firmness of supply, extent of existing pollution and assurance of supply under adverse weather and natural disaster conditions.

3. The board, at its discretion, may review such exemptions from time to time and revise same when it finds such changes in circumstances which require additional action on the part of a fuel user to protect the air.

B. 1. Subsection A of this section shall not apply to any case in which by the use of a combination of gas, liquid or solid fuel it is demonstrated to the director that sulfur oxide emissions, caused by the combustion of any solid or liquid fuel, or any fuel-burning equipment or from any stack connected thereto, does not exceed the sulfur oxide emissions of burning two percent sulfur fuel.

2. Any person seeking to come within this subsection B of this section shall install and operate a continuous monitoring device, approved by the director, to monitor sulfur dioxide emissions, on the stack of any installation where the combination of fuels is being used to control sulfur oxide emissions. The sulfur dioxide emission record, along with the record of fuel consumption and a fuel analysis, shall be submitted to the director each month.

C. 1. Subsection A of this section shall not apply in any case in which, by the use of a cleaning process, it is demonstrated to the director that sulfur oxide emissions, caused by the combustion of any solid or liquid fuel, of any fuel-burning equipment or from any stack connected thereto, does not exceed the sulfur oxide emissions of burning two percent sulfur fuel.

2. Any person seeking to come within this subsection C of this section shall conduct, at the expense of the company or industries, a series of detailed stack analyses, the method of sampling must be approved by the director, within thirty days of the installation of this cleaning process, and the performance data must be submitted to the director for evaluation. The owner or operator shall install and operate a continuous monitoring device, approved by the director, to monitor sulfur dioxide emissions. The sulfur dioxide emission record shall be submitted to the director each month. Tests to determine compliance with this section shall be performed as provided in Section 10.56.300. (Prior code § 4-1-3)

Table 10.56.160					
	Primary Standard		Secondary Standard		
Pollutant	**Concentration**	**Averaging Intervals**	**Concentration**	**Averaging Intervals**	**Remark**
PM10	150 μ g/m^3	24-hr	150 μ g/m^3	42-hr	This standard is attained when the expected number of days per calendar year with a 24-hr average concentration above 150 μ g/m^3 as determined in accordance with Appendix K of Title 40, CFR Part 50, is less than or equal to one.
	50 μ g/m^3	AAM	50 μ g/m^3	AAM	This standard is attained when the expected annual arithmetic mean concentration, as determined in accordance with Appendix K of Title 40, CFR Part 50, is less than or equal to 50 μ g/m^3.
Sulfur dioxide	0.03 ppm	AAM	0.50 ppm	3-hr	Annual arithmetic mean not to be exceeded more than once a year.
	0.14 ppm	24-hr			
Carbon monoxide	35.0 ppm	1-hr	35.0 ppm	1-hr	Not to be exceeded more than once a year.
	9.0 ppm	8-hr	9.0 ppm	8-hr	Not to be exceeded more than once a year.
Ozone	0.12 ppm	1-hr	0.12 ppm	1-hr	This standard is attained when the expected number of days per calendar year with maximum hourly average concentrations above 0.12 ppm is equal to or less than one.
Nitrogen dioxide	100 μ g/m^3	AAM	100 μ g/m^3	AAM	Annual arithmetic mean.
Lead	1.5 μ g/m^3	QAM	1.5 μ g/m^3	QAM	Calendar quarter arithmetic mean.
Gaseous fluorides			1.5 ppb 2.0 ppb 3.5 ppb 4.5 ppb	30-day 7-day 24-hr 12-hr	Not to be exceeded more than once a year.

10.56.210 Hazardous air pollutants.

A. "Hazardous air pollutant" means any air pollutant listed by the Administrator of the EPA pursuant to Section 112 of the Act, 74 U.S.C. §7412.

B. Any owner or operator of a hazardous air pollutant source must comply with any applicable standard emission standards or any other applicable requirements established by the administrator of the EPA pursuant to Section 112 of the Act.

C. The owner or operator of a hazardous air pollutant source in existence on the effective date of designation of a hazardous air pollutant shall, within six months from the date, file with the director the necessary information to evaluate the compliance status of said source. (Ord. 93-790 § 7, 1993)

10.56.220 Fuel-burning equipment.

A. The emission of particulate matter resulting from the combustion of solid fuel from any installation of fuel-burning equipment or any stack connected thereto existing before the effective date of this chapter in quantities exceeding the values specified in Table I of this subsection is prohibited. The maximum allowable particulate emission limits as given in this section are based upon the total plant rate of heat input to one or more stacks. Where natural gas or liquefied petroleum gas is used as a fuel, the Btu heat input from these fuels shall not be included.

Table I

Total Heat Input in Million Btu/Hr.	Maximum Emission Rate in Pounds Per Million Btu Input
10 or less	0.60
20	0.50
50	0.39
100	0.33
500	0.22
1,000	0.18
5,000	0.12
10,000 or greater	0.10

Interpolation of the data in Table I shall be accomplished by the use of the equation: $E = 1.09(Q)^{-0.2594}$, where E = emissions in pounds per million Btu input, Q = total heat input in million Btu per hour.

B. The emission of particulate matter resulting from the combustion of solid fuel from any installation of fuel-burning equipment or any stack connected thereto beginning operation on or after the effective date of this chapter, in quantities exceeding the values specified in Table II of this subsection is prohibited.

Table II

Total Heat Input in Million Btu/Hr.	Maximum Emission Rate in Pounds Per Million Btu Input
10 or less	0.60
20	0.41
50	0.24
100	0.16
200	0.10
250 or greater	0.10

Interpolation of the data in Table II shall be accomplished by the use of the equation: $E = 2.16(Q)^{-0.5566}$, where E = emissions in pounds per million Btu input, Q = total heat input in million Btu per hour.

C. The emissions of particulate matter resulting from the combustion of distillate oil from any installation of fuel-burning equipment or any stack connected thereto shall not exceed 0.02 pounds per million Btu heat input.

D. The emissions of particulate matter resulting from the combustion of residual oil from any existing installation of fuel-burning equipment or any stack connected thereto shall not exceed 0.15 pounds per million Btu heat input. For any installation constructed after the effective date of this chapter, the emission of particulate matter resulting from the combustion of residual oil shall not exceed 0.15 pounds per million Btu heat input or the value specified in Table II, whichever is more restrictive.

E. Irrespective of the emission standards of this section, the metropolitan board of health, by regulation, may specify emission standards for all new, modified or existing fuel-burning equipment sources located within or impacting on a nonattainment area.

F. No new coal-burning equipment of less than one million Btu per hour input shall be installed, excluding all potbellied stoves.

G. The operation of hand-fired fuel-burning equipment is prohibited. This subsection shall not apply to fuel-burning equipment used exclusively for heating a dwelling of less than three dwelling units or the burning of wood as a fuel in residential fireplaces.

H. The burning of refuse in fuel-burning equipment is prohibited, except in equipment specifically designed to burn refuse.

I. Tests to determine compliance with this section shall be performed as provided for in Section 10.56.300. (Prior code § 4-1-7)

10.56.230 Incinerators.

A. No person shall burn any refuse in any incinerator except in an incinerator having a rated capacity of one hundred pounds per hour or greater, with adequate auxiliary heat or other approved means to prevent air pollution or an air pollution nuisance. This requirement of a capacity of one hundred pounds per hour shall not apply to incinerators designed for and used exclusively as pathological incinerators.

B. No person shall cause, suffer, allow or permit the emissions from any incinerator, having a charge rate of two thousand pounds per hour or less, particulate matter in quantities exceeding two-tenths grain per standard dry cubic foot of flue gases, adjusted to twelve percent carbon dioxide by volume excluding the contribution of auxiliary fuel.

C. No person shall cause, suffer, allow or permit the emissions from any incinerator, having a charge rate greater than two thousand pounds per hour, particulate matter in quantities exceeding eight one-hundredths grain per standard dry cubic foot of flue gases, adjusted to twelve percent carbon dioxide by volume excluding the contribution of auxiliary fuel.

D. Irrespective of the emission standards of this section, the metropolitan board of health, by regulation, may specify emission standards for any new, modified or existing incinerator located within or impacting on a nonattainment area.

E. Tests to determine compliance with this section shall be performed as provided in Section 10.56.300.

F. This section shall not apply to any incinerator covered by any regulation duly adopted by the board in accordance with Section 10.56.090. (Prior code § 4-1-6)

10.56.240 Internal combustion engines.

A. No person shall cause, suffer, allow or permit the emission of visible air contaminants, the shade or appearance of which is as dark or darker than No. 2 on the Ringlemann Smoke Chart of forty percent opacity.

B. It is unlawful for any pollution-control device required by the environmental protection agency, the air pollution control board of the state or the metropolitan health department for the control of air pollution from motor vehicles to be removed or attended in any way to make them partially or completely inoperable.

C. All buses and trucks registered in the metropolitan government area shall be equipped with smoke and odor elimination equipment within twelve months after which one or more such devices have been approved by the department or by the U. S. Environmental Protection Agency.

D. The board may, by rule or regulation, promulgate, require and enforce programs of inspection and maintenance for vehicles propelled by internal combustion engines; however, such rules or regulations shall only become effective upon the approval by resolution of the council of the Metropolitan Government of Nashville and Davidson County. The board may, at its discretion, prescribe reasonable fees for inspections and provide for the payment and collection of such fees. (Ord. 95-84 § 5, 1995; prior code § 4-1-8)

10.56.250 Open burning.

No person shall cause, suffer, allow or permit open burning, except as specifically permitted in this chapter:

A. Ceremonial or recreational fires of reasonable size and duration with a valid permit from the fire marshal; such fires may not contain material such as plastics, rubber or similar refuse;

B. Fires set for the training and instruction of public or private firefighting personnel when approval is received from the director;

C. Smokeless or safety flares;

D. Fires used for outdoor cooking where done with equipment or fireplace designed for such purposes and in a manner not offensive to persons in the vicinity thereof;

E. Fires used for disposing of materials grown on that tract of land, when done with an approved device, at sites approved by the director and the fire marshal, and with a valid permit from the director and the fire marshal;

F. Such other open burning as may be approved by the director and with a valid permit from the fire marshal where there is no other practical, safe and lawful method of disposal. (Amdt. 1 to Ord. BL2013-421 § 3, 2013; Ord. BL2013-421 §§ 1—4, 2013; prior code § 4-1-5)

10.56.260 Process emissions.

This section applies to any operation, process or activity except the burning of fuel for indirect heating in which the products of combustion do not come into direct contact with process materials and except the burning of refuse.

A. No person shall cause, permit, suffer or allow the emission of gas containing sulfur oxides in excess of five hundred ppm (volume). All sampling of exhaust gases to determine compliance with this section shall be performed as provided in Section 10.56.300. For the purposes of this section, all sulfur present in gaseous compounds and containing oxygen shall be deemed to be present as sulfur dioxide. Regardless of the emission standard listed in this subsection, new sources shall utilize the best available control technology as determined by the director.

B. Process weight per hour means the total weight of all materials introduced into any specific process that may cause any emission of particulate matter. Solid fuels charged are considered as part of the process weight, but liquid and gaseous fuels and combustion air are not. For a cyclical or batch operation, the process weight per hour is derived by dividing the total process weight by the number of hours in one complete operation from the beginning of any given process to the completion thereof, excluding any time during which the equipment is idle. For a continuous operation, the process weight per hour is derived by dividing the process weight for a typical period of time.

C. No person shall cause, suffer, allow or permit the emission of particulate matter in any one hour from any existing process source in excess of the amount shown in Table III of this subsection for the process weight allocated to such source.

Table III

ALLOWABLE RATE OF EMISSION BASED ON PROCESS WEIGHT RATE

Process Weight	Rate of Emission	
Lb/Hr	Tons/Hr	Lb/Hr
100	0.05	0.551
200	0.10	0.877
400	0.20	1.40
600	0.30	1.83
800	0.40	2.22
1,000	0.50	2.58
1,500	0.75	3.38
2,000	1.00	4.10
2,500	1.25	4.76
3,000	1.50	5.38
3,500	1.75	5.96
4,000	2.00	6.52
5,000	2.50	7.58
6,000	3.00	8.56
7,000	3.50	9.49
8,000	4.00	10.4
9,000	4.50	11.2
10,000	5.00	12.0
12,000	6.00	13.6
16,000	8.00	16.5
18,000	9.00	17.9
20,000	10.00	19.2
30,000	15.00	25.2
40,000	20.00	30.5
50,000	25.00	35.4
60,000	30.00	40.0
70,000	35.00	41.3
80,000	40.00	42.5
90,000	45.00	43.6
100,000	50.00	44.6

Process Weight Lb/Hr	Rate of Emission Tons/Hr	Lb/Hr
120,000	60.00	46.3
140,000	70.00	47.8
160,000	80.00	49.0
200,000	100.00	51.2
1,000,000	500.00	69.0
2,000,000	1,000.00	77.6
6,000,000	3,000.00	92.7

Interpolation of the data in Table III for process weight rates up to sixty thousand pounds per hour shall be accomplished by use of the equation: $E = 4.10\ P^{0.67}$ and interpolation and extrapolation of the data for process weight rates in excess of sixty thousand pounds per hour shall be accomplished by use of the equation: $E = 55.0\ P^{0.11}$—40, where E = rate of emission in pounds per hour and P = process weight rate in tons per hour.

D. No person shall cause, suffer, allow or permit the emission of particulate matter from any process source beginning operation on or after the effective date of this chapter in excess of the amount shown in Table IV of this subsection for the process weight allocated to such source.

Table IV

Process Weight Rate Lbs/Hr	Emission Rate Lbs/Hr
50	0.36
100	0.55
500	1.53
1,000	2.34
5,000	6.34
10,000	9.73
20,000	14.99
60,000	29.60
80,000	31.19
120,000	33.28
160,000	34.85
200,000	36.11
400,000	40.35
1,000,000	46.72

Interpolation of the data in Table IV for the process weight rates up to sixty thousand pounds per hour shall be accomplished by the use of the equation: $E = 3.59\ P^{0.62}$ $P \leq 30$ tons/hr, and interpretation and extrapolation of the data for process weight rates in excess of sixty thousand pounds per hour shall be accomplished by the use of the equation: $E = 17.31\ P^{0.16}$ $P > 30$ tons/hr, where E = emissions in pounds per hour and P = process weight rate in tons per hour.

E. Irrespective of the maximum allowable emission as determined by either the process weight tables of subsections C and D of this section, the maximum allowable concentration of particulate process emissions shall be 0.25 grams per dry cubic foot of exhaust gases corrected to standard conditions.

F. Regardless of the specific emission standards contained in this section, the metropolitan board of health may, by regulation, specify separate emission standards for all new, modified or existing sources located within or impacting upon a nonattainment area.

G. Subsections A through E shall not apply to any new or modified source, construction or modification which commenced after the date of publication in the Federal Register of Proposed Standards which will be applicable to such source.

H. No person shall construct an air contaminant source which may emit gaseous air contaminants unless he shall install and utilize equipment and technology which is deemed reasonable by the director. (Prior code § 4-1-9)

10.56.270 Visible emissions.

A. No person shall cause, suffer, allow or permit emission of smoke from any air contaminant source, the shade or appearance of which is as dark or darker than No. 1 of the Ringelmann Smoke Chart.

1. The provisions of this subsection shall not apply to smoke emitted during the cleaning of a fire, the building of a new fire, or the blowing of soot from boiler surfaces. Under these conditions, smoke not darker than No. 3 of the Ringelmann Smoke Chart may be emitted for a period or periods aggregating no more than five minutes in any sixty consecutive minutes or more than twenty minutes in any twenty-four-hour period.

2. The provisions of this subsection shall not apply to smoke resulting from any fire ignited for the purpose of training firemen or for research in fire protection or prevention, nor to uncontrollable emissions occasioned by breakdowns of fuel-burning equipment or other failure which is not reasonably preventable, or by the maintaining and repair of air pollution control equipment.

B. No person shall cause, suffer, allow or permit the discharge into the open air, from any single source of emission whatsoever, of any air contaminant of such opacity as to obscure an observer's view to a degree equal to or greater than does smoke described in subsection A of this section; provided, that this subsection shall not apply to vision opacity caused by uncombined water droplets.

C. This section shall not apply to visible emissions from fuel-burning equipment used exclusively for heating a dwelling of less than three dwelling units.

D. The provisions of this section shall not apply to any steam locomotive or steamboat used for recreational or historical purposes; provided, that such locomotive and steamboat shall operate without any unnecessary or intentional production of smoke. (Prior code § 4-1-2)

10.56.280 Start-ups, shutdowns and malfunctions.

A. Operators of sources must take all reasonable measures to keep emissions to a minimum during start-ups, shutdowns and malfunctions. These may include installation and use of alternate control systems, changes in operating methods or procedures, ceased operation until the process equipment and/or air pollution control equipment is repaired, maintenance of sufficient spare parts, use of overtime labor, use of outside consultants and contractors and other appropriate means. Failures that are caused entirely or in part by poor maintenance, careless operation, or other preventable upset condition or preventable equipment breakdown shall not be considered a malfunction and shall be considered a violation of the applicable emission standards.

B. When any fuel-burning equipment, incinerator, control equipment or process equipment breaks down in such a manner as to cause emissions of an air contaminant in violation of this chapter, the person responsible for such equipment shall immediately notify the director of such failure or breakdown and provide a statement, giving all pertinent information, including the estimated duration of the breakdown.

C. A signed and dated log of all malfunctions, all start-ups and all shutdowns must be maintained by the owner or operator at the source. This log must include at least the following information:

1. Stack or emission point involved;

2. Time malfunction, start-up or breakdown began;

3. Type of malfunction and/or reason for shutdown;

4. Time start-up or shutdown was completed, or time the air contaminant source returned to normal operation.

D. The owner or operator of all sources having a significant impact on air quality in a nonattainment area which reported a breakdown in any calendar quarter must submit a report to the director within thirty days after the end of each calendar quarter listing the times at which malfunctions, start-ups and shutdowns occurred resulting in the discharge of emissions greater than any applicable emission limitation during this time. This report must include the magnitude of the excess emissions expressed in pounds per hour and/or the units of the applicable emission limitation standards and the operating data and calculations used in determining the magnitude of the excess emission during the quarter. (Ord. 96-584 § 4, 1996; prior code § 4-1-13)

10.56.290 Measurement and reporting of emissions.

A. The director may require any person responsible for emission of air pollutants to make or have made at the owner's expense tests to determine the quantity and quality of the emission of air pollutants from any source. The director may specify testing methods to be used. The director may require that such tests be conducted in the presence of his representative. The director shall be given a copy of the test results in writing and signed by the person responsible for the tests. All tests and calculations shall be made under the direction of a professional engineer registered in the state or be a graduate of an accredited engineering school, and be experienced in his field of endeavor.

B. 1. At the completion of any new installation, or any significant alterations, the director may require the owner or person responsible to conduct such tests as are necessary to establish the amount of air pollutants emitted from such equipment or control apparatus. Such tests shall be made at the expense of the owner and shall be conducted in a manner approved by the director. The director may require that such tests be conducted in the presence of his representative.

2. In all new installations, there shall be provided sampling ports of a size, number and location as the director may require, safe access to each port, any other sampling and testing facilities as the director may require.

3. Any person proposing to conduct a test for the purpose of demonstrating compliance with an applicable emission standard shall notify the director of the intent to test not less than thirty days prior to the proposed test date. The notification shall contain at least the following:

a. A statement outlining the purpose of the proposed test;

b. A description of the source and emission point to be tested;

c. A detailed description of the test protocol; and

d. A timetable setting forth the dates on which the testing will be conducted and a date by which the test results will be submitted to the director.

C. The director may conduct tests of air pollutants from any source. Upon request of the director, the person responsible for the source to be tested shall provide, at no expense to the board, necessary holes in stacks or ducts and such other safe and proper sampling and testing facilities, including a suitable power source,

exclusive of instruments and sensing devices as may be necessary for proper determination of the level of air pollutants.

D. The owner or operator of any air pollution source permitted in accordance with the provisions of Section 10.56.020 and 10.56.040 must submit to the director, by March 31st of each year, the actual annual emissions of all regulated pollutants emitted by the source during the previous calendar year. This information shall be submitted in writing upon forms furnished by the metropolitan health department. The data must be certified by a company official that the information is accurate to the best of his knowledge.

E. The director, by permit condition, may require periodic or enhanced monitoring, recording, and reporting that he deems necessary for demonstrating compliance with the emission standards of this chapter.

1. Monitoring may include, but is not limited to: source testing; in-stack monitoring; process parameter monitoring of material feed rates; consumption or fuel consumption; chemical analysis of feed stocks, coatings, or solvents; ambient monitoring; visible emissions evaluations; control equipment performance parameters of pressure differentials, power consumption, air or liquid flow rates or amount of air contaminants collected for disposal; air contaminant leak detection tests from process or control equipment; and any other such monitoring that the director may prescribe.

a. The monitoring must be conducted in a manner approved by the director. This includes, but is not limited to: sampling methods, analytical methods, sensor locations and frequency of sampling.

b. The monitoring method must have at least a ninety-five percent operational availability rate to prove compliance directly or indirectly with the applicable requirements unless otherwise stipulated by the director in the permit. Missing data in excess of these levels shall be grounds for enforcement action.

2. Records and reports prescribed by the director shall be recorded, compiled and submitted in a form prescribed by the director. The director shall have the authority to inspect the records during reasonable hours at the place where such records are kept. The source owner or operator must provide copies of the records to the director upon request.

a. In the absence of a specific recordkeeping procedure, it is the responsibility of the owner or operator to keep the records in such a manner that compliance with the applicable requirements can be readily ascertained.

b. Records must be legible, quantifiable and supported by documentation to validate the entries.

3. Reporting shall be in the manner prescribed by the director in the permit or approved by him in the source's operating permit application.

4. All reports submitted to the director must be certified by a company official that the information is accurate to the best of his knowledge. (Ord. 94-1161 § 8, 1994; Ord. 93-790 § 8, 1993; prior code § 4-1-14)

10.56.300 Testing procedures.

A. In order to establish a standard procedure for coal and fuel oil analysis, the following procedures or any subsequent amendment or modification thereof shall be used:

1. The heat content of coal shall be determined according to ASTM method D-271-68 Laboratory Sampling and Analysis of Coal and Coke or ASTM method D-2015-66 Gross Calorific Value of Solid Fuel by the Adiabatic Bomb Calorimeter.

2. a. The method of determining the ash and sulfur content in coal shall be that described in ASTM D-271-68 Laboratory Sampling and Analysis of Coal and Coke or equivalent method approved by the board. All coal analyses and heat contents are to be made on a dry basis. Moisture content of coal is to be determined in all cases and results recorded to facilitate calculation of actual pollutants.

b. The method of determining the sulfur content of fuel oil shall be that described in ASTM-D-129-54 Standard Method of Test for Sulfur in Petroleum Products and Lubricants by the Bomb Method. The method for determining the heat content of fuel oil shall be that described in ASTM-D-240-64 Standard Method of Test for Heat of Combustion of Liquids by the Parr Bomb Calorimeter or other method giving comparable results.

3. The director is authorized to take any quantity of fuel which he deems necessary for the purpose of evaluation to determine compliance with this regulation. Where applicable, the following sampling methods will be used:

a. For coal: ASTM-D-492-48 (1958) Sampling Coal Classified According to Ash Content, ASTM-D-2013-68 Preparing Coal Sample for Analysis and ASTM-D-2234-68 Mechanical Sampling of Coal.

b. For oil: ASTM-D-270-65 Tentative Method of Sampling Petroleum Products.

B. Source testing conducted for the purpose of demonstrating compliance with emission standards of this chapter shall be by the applicable methods as outlined in Title 40, Code of Federal Regulations, Part 60, Appendix A, "Reference Methods," with the exception that for particulate matter, the analytical result shall include the particulate matter collected in the impinger train. For new stationary sources subject to the Federal New Source Performance Standards, the method for determining concentrations of particulate matter shall be in accordance with the method outlined in Title 40, Code of Federal Regulations, Part 60, Appendix A.

C. The procedure for sampling and analysis for ambient air concentrations shall be by the applicable method as outlined in Title 40, Code of Federal Regulations, Part 50, "National Primary and Secondary Ambient Air Quality Standards," as the same title and part may be amended or recodified. Any other method that is approved by the director may be used in accordance with good professional practice. The procedure for sampling and analyzing atmospheric fluorides shall conform with the method adopted by the American Society for Testing Materials (ASTM) in 1958 and bearing ASTM designation D-1606-58T.

D. When new analytical methods become available which are superior to the methods stipulated in this section, the board, upon the recommendation of the director, may approve the new methods as alternatives to those set forth in this section. (Ord. 94-1161 § 9, 1994; prior code § 4-1-15)

Chapter 10.57

RADON REGULATION IN METROPOLITAN GOVERNMENT BUILDINGS

Sections:

10.57.010	**Definitions.**
10.57.020	**Occupancy prohibited.**
10.57.030	**Surveys required.**
10.57.040	**Continued occupancy prohibited.**
10.57.050	**Exceptions.**
10.57.060	**Repealer.**
10.57.070	**Severability.**
10.57.080	**Effective date.**

10.57.010 Definitions.

The following words and phrases when used in this chapter shall, for the purpose of this chapter, have the meanings respectively ascribed to them in this section, except when the context otherwise requires:

"Approved occupancy plan." A plan devised under criteria developed by the department by regulation of the department, which regulation has been approved by resolution of the council, which minimizes exposure of radon gas to person occupying or using a building for more than four hours per day.

"Council." The metropolitan county council.

"Department." The metropolitan board of health.

"Public building." Any building owned or used for governmental purposes by the metropolitan government and/or its agencies, except those buildings of the Metropolitan Nashville Airport Authority, the Nashville Electric Service and the Metropolitan Development and Housing Authority.

"Reduction plan." A plan devised under criteria developed by the department by regulation of the department, while regulation has been approved by resolution of the council, which reduces exposure of radon gas to persons below the unacceptable levels of radon gas.

"Survey." The necessary scientific tests and/or studies.

"Unacceptable levels of radon gas." Levels exceeding 4.0 picocuries/liter (pCi/1) concentration of radon gas. (Ord. SO88-526 § 1, 1988)

10.57.020 Occupancy prohibited.

No public building, acquired, leased, or constructed after the effective date of this chapter, may be occupied by the metropolitan government which has unacceptable levels of radon gas. (Ord. SO88-526 § 2, 1988)

10.57.030 Surveys required.

The department shall undertake the necessary surveys of all public buildings to determine the concentration of radon gas present in each of such public buildings. All existing public buildings, as of the effective date of this chapter which have not been surveyed by the department within the past two years, shall be surveyed within one hundred eighty days of the effective date of the provision of this chapter. (Ord. SO88-526 § 3, 1988)

10.57.040 Continued occupancy prohibited.

No public building may continue to be occupied by the metropolitan government which is found to have unacceptable levels of radon gas, except pursuant to the provisions hereinafter provided. (Ord. SO88-526 § 4, 1988)

10.57.050 Exceptions.

Existing public buildings found to contain unacceptable levels of radon gas may be occupied only (a) after a reduction plan has been implemented which fail to abate unacceptable levels of radon gas and (b) an approved occupancy plan has been adopted by the department. (Ord. SO88-526 § 5, 1988)

10.57.060 Repealer.

All ordinances, or parts thereof, in conflict with the provisions of this chapter are, to the extent of such conflict, hereby repealed. (Ord. SO88-526 § 6, 1988)

10.57.070 Severability.

Should any court of competent jurisdiction declare any section, clause, or provision of this chapter to be unconstitutional, such decision shall affect only such section, clause or provision so declared unconstitutional, and shall not affect any other section, clause or provisions of this chapter, it being the express intent of the metropolitan county council of the Metropolitan Government of Nashville and Davidson County that the remainder of this chapter continue to full force and effect. (Ord. SO88-526 § 7, 1988)

10.57.080 Effective date.

The provisions of this chapter shall take effect July 1, 1990. (Ord. O89-834 § 1, 1989; Ord. SO88-526 § 1, 1988)

Chapter 10.60

BURGLAR AND FIRE ALARM SYSTEMS

Sections:

10.60.010	**Definitions.**
10.60.020	**Registration required—Permit fees.**
10.60.030	**Exemptions from provisions.**
10.60.040	**Disposition of fees.**
10.60.050	**Employee training—Address identification—Automatic alarm shutoff.**
10.60.060	**Automatic dialing devices.**
10.60.070	**False alarms—Required reports of corrective action and disconnection.**
10.60.080	**Reserved.**
10.60.090	**Enforcement.**
10.60.100	**Violation and penalty.**

10.60.010 Definitions.

For the purpose of this chapter, the following terms shall have the following meanings:

"Activate" means to "set off" an alarm system indicating in any manner an incidence of burglary, robbery, fire, etc.

"Alarm systems" means any mechanical or electrical/electronic or radio-controlled device which is designed to be used for the detection of any fire or unauthorized entry into a building, structure or facility, or for alerting others of fire or of the commission of an unlawful act within a building, structure or facility, or both, which emits a sound or transmits a signal or message when activated. Alarm systems include, but are not limited to, direct dial telephone devices, audible alarms, sprinkler-activated alarms and monitored alarms. Excluded from the definition of alarm systems are devices which are designed or used to register alarms that are audible or visible and emanate from any motor vehicle, auxiliary devices installed by telephone companies to protect telephone systems from damage or disruption of service, self-contained smoke detectors, and medical-alert alarms.

"Automatic dialing device" means an alarm system which automatically sends over regular telephone lines, by direct connection, or otherwise, a prerecorded voice message or coded signal indicating the existence of the emergency situation that the alarm system is designed to detect, but shall not include such telephone lines exclusively dedicated to an alarm central station which are permanently active and terminate within the communication center of the metropolitan fire and police departments.

"Commercial premises" means any structure or area which is not defined in this section as residential premises.

"False alarm" means the activation of an alarm system through mechanical failure, malfunction, improper installation, or the negligence or intentional misuse by the owner or lessee of an alarm system or his employees, servants or agents; or any other activation of the alarm system not caused by a fire or a forced entry or attempted forced entry or robbery or attempted robbery; such terminology does not include alarms caused by acts of nature such as hurricanes, tornadoes, other severe weather conditions, or alarms caused by telephone line trouble, or other alarms caused by utility company personnel. A maximum of three false burglar alarms, two false robber/panic alarms and two false fire alarms will be granted per alarm device within a fiscal permit year. All subsequent false activations will be considered chargeable violations.

"Fire officer" means the fire chief of the Metropolitan Nashville Fire Department or his designated representatives.

"Law enforcement officer" means the chief of police of the Metropolitan Nashville Police Department or his designated representatives.

"Person" means any natural person, firm, partnership, association, corporation, company or organization of any kind, to include a government or governmental subdivision or agency thereof, exclusive of the federal government.

"Residential premises" means any structure or combination of structures which serve as dwelling units including single-family as well as multifamily units. (Ord. BL2004-353 § 1, 2004; Ord. BL2004-258 § 1, 2004; Ord. 93-872 § 1, 1994; Ord. 91-1523 § 2, 1991)

10.60.020 Registration required—Permit fees.

A. Every person who shall own, operate or lease any alarm system, as defined in this chapter, within the Metropolitan Nashville and Davidson County, Tennessee area, whether existing or to be installed in the future, shall, prior to use of the alarm system, register for a permit with the Nashville Fire Department. The registration form shall require, but not be limited to, the following information:

1. The name of the alarm company;

2. Whether installed in a residential or commercial premises;

3. The name, address, email address, business and/or home telephone number of the owner or lessee of the alarm system;

4. The names, addresses and telephone numbers of at least two persons to be notified in the event of an alarm activation, including the name, address, and telephone number of at least one local person to be responsible for the alarm system.

B. Upon initial registration of an alarm system, the owner, operator or lessee of the alarm system shall submit a fee of twenty dollars to the Nashville Fire Department for obtaining a permit for each alarm device in the system if the system is maintained on residential premises, and fifty dollars for each alarm device if the system is maintained on commercial premises. Annual renewal fees of twenty dollars for residential users and fifty dollars for commercial users will apply. All renewal permit registration forms and fees are due annually on or before the end of the month in which the permit is issued. A late fee of five dollars shall be added to any renewal permit registration submitted after the due date. (Ord. BL2025-1003 §§ 1, 2, 2025; Amdt. 1 to Ord. BL2022-1165 § 1, 2022; Ord. BL2022-1165 § 1, 2022; Ord. BL2014-778 § 1, 2014; Ord. BL2007-1443 §§ 1, 2, 2007; Ord. BL2004-353 § 2, 2004; Ord. 93-872 § 2, 1994; Ord. 91-1523 § 3, 1991)

10.60.030 Exemptions from provisions.

The provisions of this chapter shall not be applicable to residential premises within the city limits of Goodlettsville. (Ord. 93-872 § 3, 1994; Ord. 91-1523 § 11, 1991)

10.60.040 Disposition of fees.

All fees collected pursuant to this chapter shall be paid to the metropolitan government general fund. (Ord. 91-1523 § 10, 1991)

10.60.050 Employee training—Address identification—Automatic alarm shutoff.

A. Each owner, operator or lessee shall be responsible for training employees, servants or agents in the proper operation of an alarm system.

B. Each owner, operator or lessee of an alarm system shall ensure that the correct address identification is visible from the street or roadway on which the premises are located.

C. Each owner, operator, or lessee shall: (1) keep the alarm permit at the alarm site; and (2) produce the permit for inspection at the request of an applicable metropolitan government employee.

D. Any audible alarm shall be equipped with an automatic shutoff to function within twenty minutes of the alarm sounding, excluding fire alarms. (Ord. BL2025-836 § 1, 2025; Ord. BL2023-1885 § 1, 2023; Ord. 93-872 § 4, 1994; Ord. 91-1523 § 4, 1991)

10.60.060 Automatic dialing devices.

A. It shall be a violation of this chapter for any automatic tape dialing device to call on the "911" emergency line. Such devices shall be restricted to dialing the nonemergency police communications phone numbers, and no dialer shall call any fire communications phone number.

B. Any automatic tape dialing device shall:

1. Have a clearly understandable recording;

2. Be capable of repeating itself a minimum of two times;

3. Be capable of automatically resetting itself so as to not continuously call police communications phone numbers.

C. Programmed messages on an automatic tape dialing device must include and are restricted to the following:

1. The owner's/resident's name, and the exact street number and name;

2. A statement that it is a burglar or robber/panic "ALARM ONLY." It shall not say burglary or robbery "in progress";

3. A statement of the hours the business is open if the device is used for both burglar and robber/panic alarms;

4. A statement that a third party has been notified, and the identity of that third party, if a third party is notified by the device. (Ord. 93-872 § 5, 1994; Ord. 91-1523 § 6, 1991)

10.60.070 False alarms—Required reports of corrective action and disconnection.

A. The only alarms the metropolitan police and fire departments will respond to are:

1. Burglary (residential and business);

2. Robbery (business only);

3. Fire (residential and business);

4. Medical (residential and business);

5. Panic (residential only).

B. Responsibility for a false alarm shall be borne by the owner, lessee, operator or user of the alarm system or his/her employee, servant or agent occupying and/or controlling the premises at the time of the occurrence of the false alarm.

C. A response to an alarm shall result when any fire or police department officer is dispatched to or otherwise learns of the activation of any alarm system. If the user

calls or the authorized agent calls the dispatcher back within five minutes of the original call, it will not be considered a false alarm, unless the responding metropolitan officer has already arrived before the call to cancel has been made. If a metropolitan officer has not arrived on the scene within thirty minutes of the original notification, it will not be a chargeable response.

D. After the allowable false alarms, as set out in the definition for false alarms in Section 10.60.010, each person who owns, operates, leases or controls any premises, commercial or residential, having an alarm system, shall be cited to metropolitan court for any response to a false alarm. No disconnection shall be ordered on any premises required by law to have an alarm system in operation. (Ord. BL2004-353 § 3, 2004; Ord. 91-1523 § 8, 1991)

10.60.080 Reserved.

Editor's note—Ord. BL2016-384 § 1, passed Oct. 4, 2016, repealed § 10.60.080, which pertained to revocation of permit—Appeals procedure and derived from Ord. 93-872 § 7, 1994; § 1 of Amdt. 1 to Ord. 93-872, 12/7/93; Ord. 94-1036 §§ 1 and 2, 1994; Ord. BL2004-353 § 4, 2004; Ord. BL2007-1443 § 3, 2007; Ord. BL2014-778 § 2, 2014.

10.60.090 Enforcement.

Metropolitan police and fire department officers are specifically authorized to enforce this chapter. Any metropolitan police or fire officer may lawfully issue a citation to an owner, lessee, operator or user of a functional alarm system who has not obtained the permit required by Section 10.60.020, or whose alarm system has given a false alarm in excess of the number allowed under the definition of false alarm in Section 10.60.010. (Ord. 91-1523 § 9, 1991)

10.60.100 Violation and penalty.

Unlawful acts designated—Penalty.

A. It is a violation of this chapter to have a functional alarm system without having obtained a permit as required by Section 10.60.020.

B. Having an alarm activated without a permit shall constitute a violation of this chapter.

C. It is a violation of this chapter to have more false alarms than are allowable within a fiscal permit year as set out in Section 10.60.010, subject to the provisions of Section 10.60.070(c).

D. Any person who owns, operates or leases an alarm system and who shall knowingly and purposefully fail to respond or have his designee respond to his premises within one hour after notification by fire or police personnel of alarm activation, whether false or not, shall be deemed to have violated this chapter.

E. It is a violation of this chapter for an alarm company or sprinkler company to make functional a newly installed alarm system if the owner, operator or lessee of the alarm system does not have a currently valid alarm permit, unless there is a life-threatening situation making immediate operation of the alarm system necessary. In such case, the permit shall be obtained the next business day.

F. It is a violation of this chapter for an alarm company to set off a false alarm while installing, repairing or doing maintenance work on an alarm system. If the fire or police department is notified to cancel the call within five minutes of the original call, it will not be considered a false alarm, unless the responding metropolitan officer arrives on the scene before the original call is canceled. If a metropolitan officer has not arrived on the scene within thirty minutes of the original notification, it will not be a chargeable response. The false alarm shall not be charged to the owner, operator or lessee.

G. Any noncompliance with the requirements of this chapter shall constitute a violation, and each incidence of noncompliance shall constitute a separate violation, punishable as provided in Metropolitan Code Section 1.01.030; provided, however, that fines for false alarms shall not exceed twenty-five dollars for each false alarm.

H. There shall be a fee of twelve dollars whenever a citation involving an alarm permit violation listed in subsection B of this section is nullified by the nullification office of the metropolitan traffic violation bureau or is dismissed by the general session court upon the correction of the violation. This fee may be waived by the general sessions judges after a determination of indigency. (Ord. BL2004-353 § 5, 2004; Ord. BL2004-258 § 2, 2004; Ord. BL2000-395 § 1, 2000; Ord. 95-1329 § 2 (part), 1995; § 2 to Amdt. 1 of Ord. 93-872, 12/7/93; Ord. 93-872 § 8, 1994; Ord. 92-470 § 1, 1992; Ord. 91-1523 § 5, 1991)

Chapter 10.64

FIRE PREVENTION CODE

Sections:

Article I. Code Adoption

10.64.010 Fire Prevention Code adopted.
10.64.011 Enforcement of county-wide emergency health orders.
10.64.012 Amendments to the Fire Prevention Code.
10.64.013 Issuance of permits.
10.64.014 Application.
10.64.015 Hazardous substances.
10.64.016 Penalty.
10.64.017 Open burning.
10.64.018 Fee schedule.
10.64.019 Failure to submit application within designated timeframe—Expedite fees.
10.64.020 Failure to obtain a permit—Fees tripled.
10.64.021 Transferability of permit.
10.64.022 Suspension or revocation of permit.
10.64.023 Failure of service providers to submit ITM reports within designated timeframe.

Article II. No-Smoking Regulations

10.64.024 Prohibited smoking areas—Exceptions.
10.64.030 No-smoking signs—Authorized when.
10.64.040 No-smoking signs—Display required when.

Article I. Code Adoption

10.64.010 Fire Prevention Code adopted.

The metropolitan government adopts the 2024 edition of the International Fire Code and the NFPA 101 Life Safety Code, as amended in this chapter, published by the International Code Council and National Fire Protection Association respectively, save and except those portions such as deleted, modified or amended below, to be applicable throughout the city. A copy of the International Fire Code, is attached to the ordinance codified in this section and hereof, the same as if copied verbatim herein. The International Fire Code, as amended shall be known as the Metropolitan Fire Prevention Code. The following annexes of the fire code adopted by this Section are hereby included as a part of the city's adopted fire code, save and except those portions which are deleted, modified or amended by section 10.64.012: Appendix B Fire-Flow Requirements for Buildings; Appendix C Fire Hydrant Locations and Distribution; Appendix D Fire Apparatus Access Roads; Appendix E Hazard Categories; Appendix F Hazard Ranking; Appendix H Hazardous Materials Management Plan (HMMP) and Hazardous Materials Inventory Statement (HMIS) Instructions; Appendix I Fire Protection Systems-Noncompliant Conditions; Appendix J Building Information Sign; Appendix L Requirements for Firefighter Air Replenishment Systems; Appendix N Indoor Trade Shows and Exhibitions; Appendix O Valet Trash and Recycling Collection in Group R-2 Occupancies. A copy of the NFPA 101 Life Safety Code is codified in this section, as amended, as if copied verbatim herein. (Ord. BL2025-1004 § 1, 2025; Ord. BL2022-1373 §§ 1, 2, 2022; Ord. BL2021-658 § 1, 2021; Ord. BL2015-1145 § 1, 2015; Amdt. 1 to Ord. BL2008-350, § 7, 2009; Ord. BL2008-350, § 1, 2009, eff. 10-30-2009; Ord. BL2007-1390 § 2, 2007; Ord. BL2002-1142 § 8, 2002; Ord. 98-1445 § 6, 1998)

10.64.011 Enforcement of county-wide emergency health orders.

Notwithstanding any other provision of this title, it is a condition of any permit or work authorization issued pursuant to the authority granted herein, including those issued prior to the effective date hereof, that the permittee and its employees abide by applicable laws, rules, regulations and orders, including without limitation those emergency orders issued by the chief medical director in connection with a declared state of emergency in all or part of Davidson County. Employees of a department that has authorized work or issued a permit pursuant to this title may order the cessation of work or specific activities, or the suspension of a permit, on any work site operating under such permit, for a violation of an emergency order.

Notice of the stop work order shall be in writing and shall be given to the owner of the property or to his agent or to the person in charge of the work or overseeing the operation. When, in the opinion of the director of the department that authorized work or issued a permit, or the director's agent, that an emergency exists, a written stop work order shall not be required, and in such instances, oral notice to the owner, his agent or the person in charge of the work shall have the same force and effect as a written order. Any violation of the stop work order shall be assessed as a civil penalty at the rate of fifty dollars per day. In addition, where a violation exists, the director of the department or the director's agent may request that utility service be curtailed until the violation is corrected or abated. Appeals from the

stop work order may be made to the relevant board or commission that oversees the authorization of the work or issuance of the permit. (Ord. BL2021-658 § 2, 2021; Ord. BL2020-421 § 1, 2020)

10.64.012 Amendments to the Fire Prevention Code.

The following amendments, deletions, or additions to the 2024 edition of the International Fire Code and the NFPA 101 Life Safety Code are adopted by reference, as fully as though copied into the Metropolitan Fire Prevention Code, and thereby made a part of the Metropolitan Fire Prevention Code.

Adding the following subsection:

101.2.1 Appendices. Provisions in the following Appendices are hereby adopted: B, C, D, E, F, H, I, J, L, N, O.

Adding the following subsection:

102.9.1 Life Safety Code. For any provisions in existing buildings not explicitly addressed in this code shall be addressed in NFPA 101.

Adding the following subsection:

104.2.3.8 Compliance with subsequent editions of this code and referenced publications. The fire code official is authorized to accept subsequent editions of this code and referenced publications as evidence of compliance with the specified edition.

Adding the following subsection:

105.3.9 Working without a permit. Operating or starting work without the applicable fire prevention permit is strictly prohibited. A penalty equal to 300 percent of the cost of the required permit and inspection fees shall be assessed for the work.

Subsection 105.5 is amended by deleting and substituting in lieu thereof:

105.5 Required operational permits. The fire code official is authorized to issue operational permits for the operations set forth in Sections 105.5.2 through 105.5.63.

Subsection 105.5.34 is amended by deleting and substituting in lieu thereof:

105.5.34 Mobile food preparation vehicles. An operational permit is required for mobile food preparation vehicles equipped with appliances that produce smoke or grease-laden vapors, or that utilize LP-gas.

Adding the following subsection:

105.5.58 Knox Box. An operational permit is required to verify that items required for access into a building or facility, as well as any required contact information, kept in a building or facility's Knox Box is in proper working order and accurate.

Adding the following subsection:

105.5.59 After hours inspection. An operational permit is required to schedule a fire/life safety inspection outside of the normal hours of operation for the AHJ.

Adding the following subsection:

105.5.60 After hours standby. An operational permit is required for NFD personnel to be present on standby when, in the opinion of the fire code official, potentially hazardous conditions or a reduction in a life safety feature exist due to the type of performance, display, exhibit, occupancy, contest, or activity; an impairment to a fire protection feature; or the number of persons present.

Adding the following subsection:

105.5.61 Daycare occupancy. An operational permit is required to operate a daycare facility within the jurisdiction.

Adding the following subsection:

105.5.62 Residential Board and Care operation. An operational permit is required to operate a state licensed residential board and care facility within the jurisdiction.

Adding the following subsection:

105.5.63 Fire/Life Safety Permit. An operational permit is required when a fire/life safety inspection is required for an occupant, building, property, facility, etc. that is not tied to a developmental permit from the NFD, Metro Codes, Metro Beer Board, etc. or an annual fire/life safety inspection within the jurisdiction.

Adding the following subsection:

106.2.5 Life Safety Report. A Life Safety Report, providing a description of the fire protection in the building, shall be prepared by a Registered Design Professional prior to submitting construction drawings for: high-rise buildings; covered mall buildings; buildings containing atriums; storage height over 40 feet; Group F and S occupancies 500,000 square feet and over; Group H occupancies; and any other structures as determined by the fire code or building official. This description shall include the basic concepts used for suppression, alarm, notification, egress, fire resistive assemblies, smoke control, and other related systems, as well as the coordination of those systems. Additional fire protection and/or life safety systems including hose connections may be required by the fire code official. Upon completion of the project, a copy of the approved documentation shall be maintained, including any changes and updates at the site.

Subsection 110.3 is amended by deleting and substituting in lieu thereof:

110.3 Recordkeeping. A record of periodic inspections, tests, servicing and other operations and maintenance shall be maintained on the premises or other approved location for not less than 3 years, or a different period of time where specified in this code or referenced standards. Records shall be made available for inspection by the fire code official, and a copy of the records shall be provided to the fire code official on request. The fire code official is authorized to prescribe the form and format of such recordkeeping. The fire code official is authorized to require that certain required records be filed with the fire code official, including via any third-party reporting partner.

Section 202 is amended by:

Adding the following to Section 202, immediately following the heading:

BED AND BREAKFAST HOMESTAY. Means a private home, inn, or other unique residential facility located in a structure of historical significance as defined in Tennessee Code Annotated Section 68-14-503(3) offering bed and breakfast accommodations and one (1) daily meal and having less than four (4) guest rooms furnished for pay, with guests staying not more than fourteen (14) days, and where the innkeeper resides on the premises or property, or immediately adjacent to it. Guest rooms shall be established and maintained distinct and separate from the innkeeper's quarters.

BREEZEWAY. A covered connector between two buildings or structures, open at each end but less than 50 percent open, located at, above, or below grade level, that may be used as a means of egress from a building or structure.

BOARD. Shall mean the Metropolitan Board of Fire and Building Code Appeals.

CROWD MANAGER. A person responsible for defining and implementing an establishments or events emergency action plan, ensuring employees understand their roles in crowd management and assisting in directing the crowd in an orderly manner for evacuation.

DRIVEWAY. A vehicular access roadway less than twenty-feet in width and serving no more than two single-family dwellings.

TEMPORARY. Shall mean not more than 90 calendar days.

SUBSTANTIALLY REMODELED OR REHABILITATED. Means any structural alteration or restoration of a building for which the cost, or value exceeds 50% of the current replacement cost of the particular building, or where 50% or more of the gross square footage has been structurally altered, such building shall conform to the requirements for new buildings.

Deleting the current definition of "Mobile Food Preparation Vehicles" found in Section 202 and substituting in lieu thereof:

MOBILE FOOD PREPARATION VEHICLES. A vehicle that is equipped with appliances that produce smoke or grease-laden vapors, or that utilize LP-gas or CNG systems, for the purpose of preparing and serving food to the public. Vehicles intended for private recreation are not considered mobile food preparation vehicles. Mobile food preparation vehicles shall be relocated from their operating position at least once every six (6) consecutive calendar days to allow for maintenance of equipment or appliances that produce smoke or grease-laden vapors. Mobile or temporary cooking can include self-propelled trucks and vehicles, trailered units, push carts, etc. or other structures for which a building permit has not been issued.

Subsection 307.1 is amended by deleting and substituting in lieu thereof:

307.1 General. Open burning, recreational fire, and portable outdoor fireplaces shall comply with section 10.64.017 of the Metropolitan Government of Nashville and Davidson County Code.

Deleting subsection 307.1.1 in its entirety.

Deleting subsection 307.2 in its entirety.

Deleting subsection 307.2.1 in its entirety.

Deleting subsection 307.3 in its entirety.

Deleting subsection 307.4 in its entirety.

Deleting subsection 307.4.1 in its entirety.

Deleting subsection 307.4.2 in its entirety.

Deleting subsection 307.4.3 in its entirety.

Deleting subsection 307.5 in its entirety.

Subsection 308.1.1 is amended by deleting and substituting in lieu thereof:

308.1.1 Where prohibited. The AHJ shall have the authority to prohibit any or all open flames, candles, and open, recreational, and cooking fires or other sources of ignition, or establish special regulations on the use of any form of fire or smoking material where circumstances make such conditions hazardous, such as taking or utilizing an open flame or light in a structure, vessel, boat or other place where highly flammable, combustible or explosive material is utilized or stored.

Adding the following subsection:

316.7 Building Information Sign. All buildings shall be equipped with the approved fire fighter safety building marking system sign, per Appendix J.

Adding the following subsection:

403.4.4 Emergency evacuation drill procedure. Emergency evacuation drills shall be conducted as follows:

1. Not less than one emergency evacuation drill shall be conducted every month the facility is in session, unless both of the following criteria are met:
    a. In climates where the weather is severe, the monthly emergency evacuation drills shall be permitted to be deferred.
    b. The required number of emergency evacuation drills shall be conducted, and not less than four shall be conducted before the drills are deferred.
2. All occupants of the building shall participate in the drill.
3. One additional emergency evacuation drill, other than for educational occupancies that are open on a year-round basis, shall be required within the first 30 days of operation.

Subsection 403.11.3 is amended by deleting and substituting in lieu thereof:

403.11.3 Crowd Managers. Where facilities or events involve a gathering of more than 250 people, crowd managers shall be provided in accordance with Sections 403.11.3.1 through 403.11.3.3.

Subsection 403.11.3.1 is amended by deleting and substituting in lieu thereof:

403.11.3.1 Number of crowd managers. Not fewer than one trained crowd manager or crowd manager supervisor for each 250 persons or portion thereof, shall be provided for the gathering.

Exceptions:

1. Outdoor events with fewer than 1,000 persons in attendance shall not require crowd managers.
2. Assembly occupancies used exclusively for religious worship with an occupant load not exceeding 1,000 shall not require crowd managers.
3. The number of crowd managers shall be reduced where, in the opinion of the fire code official, the fire protection provided by the facility and the nature of the event warrant a reduction.

Adding the following subsection:

501.5 Fire Apparatus Access Plan. A fire apparatus access plan shall be provided with construction documents for any new building, commercial or residential development, additions to an existing building, or when requested by the fire code official.

Subsection 503.1.1 is amended by deleting and substituting in lieu thereof:

503.1.1 Buildings and facilities. Approved fire apparatus access roads shall be provided for every facility, building or portion of a building hereafter constructed or moved into or within the jurisdiction. The fire apparatus access road shall comply with the requirements of this section and shall extend to within 150 feet (45,720 mm) of all portions of the facility and all portions of the exterior walls of the first story of the building as measured by an approved route around the exterior of the building or facility.

Exceptions:

1. The fire code official is authorized to increase the dimension to 250 feet (45,720 mm) where any of the following conditions occur:
    1.1. The building is equipped throughout with an approved automatic sprinkler system installed in accordance with Section 903.3.1.1, 903.3.1.2 or 903.3.1.3.
    1.2. Fire apparatus access roads cannot be installed because of location on property, topography, waterways, railways, nonnegotiable grades, or other similar conditions and an approved alternative means of fire protection is provided.
    1.3. There are not more than two Group R-3 or Group U occupancies.
    1.4. One- and two-family dwellings.
2. Where approved by the fire code official, fire apparatus access roads shall be permitted to be exempted or modified for solar photovoltaic power generation facilities.

Adding the following subsection:

503.1.4 Building courtyards. Buildings having an interior courtyard that do not meet the requirements of 503.1.1 for fire department access shall provide two points of access from the fire lane to the interior courtyard. Each of the two points of access shall be a minimum of 10 feet wide each having a minimum of a 2-hour fire rating in accordance with the IBC.

Adding the following subsection:

503.2.1.1 Single lane roads. The width in 503.2.1 shall be permitted to be reduced to 13 feet in cases of a single lane road. Single lane roads shall comply with all of the following:

1. The road shall be one-way, or, a one-way lane channel of a divided two-way road.
2. Shall not exceed 500 feet in length.
3. Shall not terminate in a dead-end.

4. Parking shall be prohibited along the single lane section.

5. Road width at curves shall be increased where necessary to accommodate swept path of all emergency vehicles.

6. The AHJ is authorized to require installation of additional fire protection equipment.

Subsection 503.2.3 is amended by deleting and substituting in lieu thereof:

503.2.3 Surface. Fire apparatus access roads shall be designed and maintained to support the imposed loads of fire apparatus and shall be surfaced with an approved material to provide all-weather driving capabilities.

Subsection 503.2.4 is amended by deleting and substituting in lieu thereof:

503.2.4 Turning radius. The required turning radius of fire apparatus access roads shall be a minimum of 25 feet inside and 50 feet outside.

Subsection 503.2.7 is amended by deleting and substituting in lieu thereof:

503.2.7 Grade. The grade of the fire apparatus access road shall not exceed 12% without written approval from the fire code official.

Subsection 503.2.8 is amended by deleting and substituting in lieu thereof:

503.2.8 Angles of approach and departure. The angles of approach and departure for fire apparatus access roads shall not exceed 1 ft drop in 20 ft (0.3 m drop in 6 m), or the design limitations of the fire apparatus utilized by the fire department and shall be subject to approval by the AHJ.

Subsection 503.2.8.1 is amended by deleting and substituting in lieu thereof:

503.2.8.1 Curbs. Where fire department access roads connect with roadways, at least one of the following shall be provided:

1. Curb cuts extending at least 2 ft (0.61 m) beyond each edge of the fire department access road.

Subsection 503.6 is amended by deleting and substituting in lieu thereof:

503.6 Security gates. The installation of security gates across a fire apparatus access road shall be approved by the fire code official. Where security gates are installed, they shall have an approved means of emergency operation. The security gates and the emergency operation shall be maintained operational at all times. Electric gate operators, where provided shall be listed in accordance with UL 325 and equipped with RF operated "Click-2-Enter" emergency operating system. Electric gate operators shall be designed, constructed and installed to comply with the requirements of ASTM F2200. Gates shall comply with the requirements of the Nashville Fire Department, Nashville Department of Transportation, and Tennessee Department of Transportation.

Adding the following subsection:

503.6.1 Permit required. A permit is required to install access control or security gates across a fire department access road.

Adding the following subsection:

503.6.2 Manual gates. Manual gates shall be equipped with a Knox key box or Knox padlock as approved by the AHJ.

Adding the following subsection:

503.6.3 Plans. Plans shall be submitted for review and approval prior to installation of access control or security gates across fire department access roads.

Adding the following subsection:

503.7 Outdoor assembly event fire department access roads.

Adding the following subsection:

503.7.1 Fire department access roads. Outdoor assembly events shall provide fire department access roads in accordance with Section 503.2.1.

Adding the following subsection:

503.7.1.1 Plans. Fire department access plan shall be submitted for review and approval by the fire code official.

Adding the following subsection:

503.7.2 Hostile vehicle mitigation. Hostile vehicle mitigation barriers required by law enforcement placed across fire lanes and emergency access paths shall require a minimum 14 ft wide access point between barriers.

Adding the following subsection:

503.7.3 Barriers. Any barrier or gate placed across a fire lane or emergency access path shall be approved by the fire code official.

Subsection 505.1 is amended by deleting and substituting in lieu thereof:

505.1 Address Identification. All buildings and structures within Metropolitan Nashville and Davidson County shall have approved address numbers posted in accordance with the following:

1. Address identification shall be legible and visible from the street or road fronting the property.

2. Characters shall contrast with their background.

3. Address numbers shall be Arabic numbers or alphabetical letters, and numbers shall not be spelled out.

4. Numbers posted on the outside of residences shall be a minimum of three (3) inches in height

with a minimum stroke width of 0.5 inches (12.7 mm). The numbers may be attached to the residence or the mailbox, if the mailbox is next to the street.

5. Numbers posted on the outside of nonresidential buildings shall be a minimum of six (6) inches in height with a minimum stroke width of 0.5 inches (12.7 mm). Numbers posted on interior doors or spaces (such as lease space in a mall) shall be a minimum of three (3) inches in height.

6. Numbers and/or letters posted on the outside of multifamily buildings shall be a minimum of six (6) inches in height with a minimum stroke width of 0.5 inches (12.7 mm). Identifying numbers or letters for individual dwelling units shall be a minimum of three (3) inches in height and posted on or at the doors of the individual dwelling units.

Subsection 506.1 is amended by deleting and substituting in lieu thereof:

506.1 Where required. Knox rapid entry key box(es) shall be installed at all commercial occupancies, tenant spaces, and other locations containing a fire or life safety system, fenced or gated access, hazardous materials, or as determined by the fire code official. Multiple key boxes may be required based on the size or layout of the building as determined by the fire code official.

Adding the following subsection:

507.3.1 Fire flow capacity. The aggregate fire flow capacity of all fire hydrants within 1000 ft of the building, when measured by an approved route of travel, shall not be less than the required fire flow.

Subsection 507.4 is amended by deleting and substituting in lieu thereof:

507.4 Water supply test. Water supply tests shall be witnessed by the fire code official or, where approved, documentation of the test shall be provided to the fire code official prior to final approval of the water supply system.

Subsection 507.5.1 is amended by deleting and substituting in lieu thereof:

507.5.1 Where required. Where a portion of the facility or building constructed or moved into or within the jurisdiction is more than 500 feet from a hydrant on a fire apparatus access road, as measured by an approved route around the exterior of the facility or building, on-site fire hydrants and mains shall be provided where required by the fire code official.

Exceptions:

1. For group R-3 and Group U occupancies, the distance requirement shall be 600 feet.

2. One- and two-family dwellings on lots 5 acres and larger.

Subsection 508.1.3 is amended by deleting and substituting in lieu thereof:

508.1.3 Size. The fire command center shall not be less than 200 square feet in area with a minimum dimension of 10 feet.

Subsection 510.1 is amended by deleting and substituting in lieu thereof:

510.1 Emergency responder communications enhancement systems in new buildings. Approved in-building emergency responder communications enhancement system (ERCES) for emergency responders shall be provided in all new buildings. In-building ERCES within the building shall be based on the existing coverage levels of the public safety communications systems utilized by the jurisdiction, measured at the exterior of the building. The ERCES, where required, shall be of a type determined by the fire code official and the frequency license holder(s). This section shall not require improvement of the existing public safety communications systems.

i. Exceptions:

1. Group R-3 occupancies, one- and two-family dwellings and townhomes.

2. Open parking garages with no below grade levels.

3. Buildings three stories or less, with a floor area not exceeding 12,000 square feet per floor with no below grade area(s).

4. Where it is determined by the fire code official that communications coverage is not needed.

5. In facilities where emergency responder communications coverage is required and such systems, components or equipment required could have a negative impact on normal operations of that facility, the fire code official shall have the authority to accept an automatically activated emergency responder communications coverage system.

Adding the following subsection:

510.2.1 Previously required two-way wired communications systems. Buildings shall comply with Section 510.1 should a previously required two-way wired fire department communication system be removed or become inoperative.

Adding the following subsection:

603.10 Electric vehicle charging stations. Electric vehicle charging stations shall be installed in accordance with NFPA 70 and this code.

Adding the following subsection:

603.10.1 Emergency shutoff. For fixed-in-place equipment supplying dc power to a vehicle, one or more clearly identified emergency shutoff devices or electrical disconnects shall be provided and meet all of the following:

1. Be installed in a readily accessible location in sight from the equipment.
2. Disconnect power to all electric vehicle power transfer system equipment on the premises.
3. Be marked "ELECTRIC VEHICLE EMERGENCY DISCONNECT".
4. Require manual intervention in order to reset from an emergency shutoff condition.
5. Disconnect all ungrounded conductors of the circuits simultaneously from the source of supply.
6. Shall be of a type approved by the AHJ.

Adding the following subsection:

604.6.2.5 Firefighter elevator key box. A Knox Firefighter Elevator key box shall be installed in the vicinity of the elevator or bank of elevators in a location that is visible and readily accessible to emergency responders.

Subsection 605.4.2.8 is amended by deleting and substituting in lieu thereof:

605.4.2.8 Tanks in basements. Tanks in basements shall be located not more than one story below the lowest level of fire apparatus access.

Subsection 606.3.3.3 is amended by deleting and substituting in lieu thereof:

606.3.3.3 Records. Records for inspections shall state the individual and company performing the inspection, a description of the inspection and when the inspection took place. Records for cleanings shall state the individual and company preforming the cleaning and when the cleaning took place. Such records shall be completed after each inspection or cleaning and maintained. A copy of the record shall also be filed with any third-party reporting partner.

Subsection 705.2.7 is amended by deleting and substituting in lieu thereof:

705.2.7 Periodic inspection and testing of rolling steel fire doors. Rolling steel fire doors shall be inspected and tested annually by a trained rolling steel fire door systems technician in accordance with the applicable provisions of NFPA 80. Records of inspections and testing shall be maintained. A copy of the record shall also be filed with any third-party reporting partner as required.

Adding the following subsection:

901.2.1 Plans required. Construction documents for the fire protection and life safety systems below shall be submitted for review and approval in accordance with department policies prior to system installation or modification:

1. Water based fire protection systems.
2. Clean agent and special hazard extinguishing systems.
3. Fire alarm systems.
4. Firefighter air replenishment systems.
5. Underground fire service mains.
6. Private fire hydrants.
7. Emergency responder communication enhancement systems.

Renumbering subsection "901.2.1 Statement of Compliance" to now be designated as "901.2.2 Statement of Compliance."

Subsection 901.6.3 is amended by deleting and substituting in lieu thereof:

901.6.3 Records. Installation, testing, and maintenance of fire protection and life safety systems shall be performed by properly licensed and qualified persons. Records of all system inspections, tests and maintenance shall be maintained in accordance with Section 110.3. A copy of the inspection, testing, and maintenance record shall be filed with any third-party reporting partners as required by the AHJ.

Adding the following subsection:

903.2.1.2.1 Existing Group A-2. The following existing Group A-2 occupancies shall be protected throughout by an approved, electrically supervised automatic sprinkler system in accordance with NFPA 13, when the occupant load exceeds 200:

1. Bars with live entertainment
2. Dance halls
3. Discotheques
4. Nightclubs
5. Assembly occupancies with festival seating

Regardless of occupant load, any of the occupancies listed above that have been cited for the following shall be subject to automatic fire sprinkler system requirements as ordered by the fire code official:

1. Overcrowding
2. Locked or blocked fire exits
3. Unpermitted pyrotechnic
4. The use of props or displays not meeting applicable flame spread requirements

For the purposes of this section, "live entertainment" shall include any live performance such as live music,

dancing, stage acts, disc jockey, or other entertainment that, in the opinion of the fire code official, could cause a distraction to the audience in the case of a fire or emergency in such a manner as to delay normal exiting from the facility. A mere occasional or infrequent live performance, scheduled or unscheduled, that is incidental or not part of the regular venue of the occupancy shall not be considered live entertainment. In all cases, the fire code official has the authority to determine the circumstances that constitute "live entertainment".

Subsection 903.2.2 is amended by deleting and substituting in lieu thereof:

903.2.2 Group B. An automatic sprinkler system shall be provided for Group B occupancies where one of the following conditions exist:

1. Building is three or more stories above grade.
2. The fire area exceeds 12,000 square feet.
3. The combined fire area exceeds 24,000 square feet.

Subsection 903.2.2.1 is amended by deleting and substituting in lieu thereof:

903.2.2.1 Ambulatory care facilities. An automatic sprinkler system shall be installed throughout the entire floor containing an ambulatory care facility where either of the following conditions exist at any time:

1. Four or more care recipients are incapable of self-preservation.
2. One or more care recipients that are incapable of self-preservation are located at other than the level of exit discharge serving such a facility.

In buildings where ambulatory care is provided on levels other than the level of exit discharge, an automatic sprinkler system shall be installed throughout the entire floor as well as all floors below where such care is provided, and all floors between the level of ambulatory care and the nearest level of exit discharge, the level of exit discharge, and all floors below the level of exit discharge.

Subsection 903.2.10 is amended by deleting and substituting in lieu thereof:

903.2.10 Group S-2 parking garages. An automatic sprinkler system shall be provided throughout buildings classified as parking garages.

Exception:

1. Enclosed parking garages beneath Group R-3 occupancies.

Subsection 903.3 is amended by deleting and substituting in lieu thereof:

903.3 Installation requirements. Automatic sprinkler systems shall be designed and installed in accordance with Section 903.3.1.1, unless otherwise permitted by Sections 903.3.1.2 and 903.3.1.3 and other chapters of this code, as applicable. All installations of automatic sprinkler systems and their water supplies shall be performed by a sprinkler contractor licensed by the State of Tennessee.

Adding the following subsection:

903.4.2.1 Systems not currently monitored. Systems not currently monitored by an approved supervising station or method shall comply with Section 903.4.2.

Subsection 905.3.1 is amended by deleting and substituting in lieu thereof:

905.3.1 Height. Class I standpipe systems shall be installed throughout buildings where any of the following conditions exist:

1. Four or more stories are above or below grade plane.
2. The floor level of the highest story is located more than 30 feet above the lowest level of fire department vehicle access.
3. The floor level of the lowest story is located more than 30 feet below the highest level of fire department vehicle access.

Exceptions: In determining the lowest level of fire department vehicle access, it shall not be required to consider either of the following:

1. Recessed loading docks.
2. Conditions where the topography makes access from the fire department vehicle to the building impractical or impossible.

Deleting subsection 905.5 in its entirety.

Deleting subsection 905.5.1 in its entirety.

Deleting subsection 905.5.2 in its entirety.

Deleting subsection 905.5.3 in its entirety.

Deleting subsection 905.6 in its entirety.

Deleting subsection 905.6.1 in its entirety.

Deleting subsection 905.6.2 in its entirety.

Subsection 907.1.2 is amended by deleting and substituting in lieu thereof:

907.1.2 Fire alarm shop drawings. Shop drawings for fire alarm systems shall be prepared in accordance with NFPA 72 and submitted for review and approval prior to system installation where:

1. A new system is to be installed.
2. Fifty percent of the system notification or initiating devices are replaced.
3. Twenty or more devices added or replaced on an existing system.
4. Fire alarm control panel is replaced.

Subsection 907.2.11.2 is amended by deleting and substituting in lieu thereof:

907.2.11.2 Groups R-2, R-3, R-4, and I-1. Single- or multiple-station smoke alarms shall be installed and maintained in Groups R-2, R-3, R-4, and I-1, regardless of occupant load in the following locations:

1. On the ceiling or wall outside of each separate sleeping area in the immediate vicinity of bedrooms.
2. In each room used for sleeping purposes.
3. In each story within a dwelling unit, including basements, garages and cellars but not including crawl spaces and uninhabitable attics. In dwellings or dwelling units with split levels and without an intervening door between the adjacent levels, a smoke alarm installed on the upper level shall suffice for the adjacent lower level provided that the lower level is less than one full story below the upper level.

Exception: Heat detectors may be substituted for smoke detectors installed in cellars and attached garages.

Adding the following subsection:

907.2.11.2.1 Additions, alterations or repairs to Group R. Where an addition, alteration or repair to an individual dwelling unit or guestroom in Group R requires a permit, smoke alarms shall be installed within that individual dwelling unit or guestroom in accordance with this section. Where one or more sleeping rooms are added or created in an existing Group R, smoke alarms shall be installed in accordance with this section.

Exception: Repairs to the exterior surface of occupancies in Group R are exempt from the requirements of this section.

Subsection 907.4.2.1 is amended by deleting and substituting in lieu thereof:

907.4.2.1 Location. Manual fire alarm boxes shall be located not more than 5 feet (1,524 mm) from the entrance to each exit. In buildings not protected by an automatic sprinkler system in accordance with Section 903.3.1.1 or 903.3.1.2, additional manual fire alarm boxes shall be located so that the distance of travel to the nearest box does not exceed 200 feet (60,960 mm). Manual fire alarm boxes shall be mounted on both sides of grouped openings over 40 feet (12.2 m) in width, and within 60 inches (1,525 mm) of each side of the opening.

Subsection 907.6.6 is amended by deleting and substituting in lieu thereof:

907.6.6 Monitoring. Fire alarm systems required by this chapter or by the International Building Code shall be monitored by an approved central station listed in accordance with the most recent edition of NFPA 72. Any local ordinances enforced by the authority having jurisdiction shall also apply.

Adding the following subsection:

913.4.2 Backflow prevention devices. Backflow prevention devices on automatic fire extinguishment systems shall be serviced by an approved sprinkler contractor licensed by the state of Tennessee.

Table 1004.5 is amended by deleting and substituting the row starting with "Standing space" only, in lieu thereof:

TABLE 1004.5 MAXIMUM FLOOR AREA ALLOWANCES PER OCCUPANT:

Assembly—Standing space = 7 net

Adding the following subsection:

1004.10 Building Evacuation

1004.10.1 Evacuation drills. Persons shall not fail to leave a building when notified to do so or when directed by the AHJ as a result of a known or perceived emergency.

1004.10.2 Overcrowding. Persons shall not fail to leave any overcrowded when ordered to do by the AHJ.

1004.10.3 Fire alarm notification. Persons shall not fail to leave a building when a fire alarm system is activated or when required by a fire drill, unless otherwise provided for in an approved building fire evacuation plan or during routine system testing or maintenance.

1004.10.4 Non-fire mass notification signal. For non-fire incidents, persons shall not fail to comply with actions required by an emergency action plan when a mass notification or other emergency notification signal is activated.

Subsection 1010.2.7 is amended by deleting and substituting in lieu thereof:

1010.2.7 Locking arrangements in educational occupancies. In Group E occupancies, Group B educational occupancies and Group I-4 occupancies, egress doors from classrooms, offices and other occupied rooms with locking arrangements designed to keep intruders from entering the room shall comply with all of the following conditions, or meet the requirements of NFPA 101 Section 15.2.2.2.4.1:

1. The door shall be capable of being unlocked from outside the room with a key or other approved means.
2. The door shall be openable from within the room in accordance with Section 1010.2.
3. Modifications shall not be made to listed panic hardware, fire door hardware or door closers.

4. Modifications to fire door assemblies shall be in accordance with NFPA 80.

Remote locking or unlocking of doors from an approved location shall be permitted in addition to the unlocking operation in Item 1.

Subsection 1015.4 is amended by deleting and substituting in lieu thereof:

1015.4 Opening limitations. Required guards shall not have openings that allow passage of a sphere 4 inches (102 mm) in diameter from the walking surface to the required guard height.

Exceptions:

1. From a height of 36 inches (914 mm) to 42 inches (1,067 mm), guards shall not have openings that allow passage of a sphere 4 3/8 inches (111 mm) in diameter.

2. The triangular openings at the open sides of a stair, formed by the riser, tread and bottom rail shall not allow passage of a sphere 6 inches (152 mm) in diameter.

3. At elevated walking surfaces for access to and use of electrical, mechanical or plumbing systems or equipment, guards shall not have openings that allow the passage of a sphere 21 inches (533 mm) in diameter.

4. In areas that are not open to the public within occupancies in Group I-3, F, H or S, and for alternating tread devices and ship's ladders, guards shall not have openings that allow the passage of a sphere 21 inches (533 mm) in diameter.

5. In assembly seating areas, guards required at the end of aisles in accordance with Section 1030.17.4 shall not have openings that allow passage of a sphere 4 inches (102 mm) in diameter up to a height of 26 inches (660 mm). From a height of 26 inches (660 mm) to 42 inches (1,067 mm) above the adjacent walking surfaces, guards shall not have openings that allow passage of a sphere 8 inches (203 mm) in diameter.

6. Within individual dwelling units and sleeping units in Group R-2 and R-3 occupancies, guards on the open sides of stairs shall not have openings that allow passage of a sphere 4 3/8 (111mm) inches in diameter.

7. From the walking surface to the first element, the guard shall not have openings that allow passage of a sphere 2 inches in diameter.

Subsection 1025.1 is amended by deleting and substituting in lieu thereof:

1025.1 General. Approved luminous egress path markings delineating the exit path shall be provided in high-rise buildings of Group A, B, E, I-1, M or R-1 occupancies in accordance with this section.

Exception: Luminous egress path markings shall not be required:

1. On the level of exit discharge in lobbies that serve as part of the exit path in accordance with Section 1028.2, Exception 1.

2. Luminous egress path markings shall not be required where illumination level under emergency power is provided in accordance with Section 1008.3.2 and the power supply to the means of egress illumination within the interior exit enclosures, interior exit ramps, and exit passageways is powered by all of the following:

a. Premises' electrical supply,

b. Generator electrical supply, and

c. Emergency storage battery units at each fixture to provide duration of not less than 90 minutes.

Subsection 1103.5.1 is amended by deleting and substituting in lieu thereof:

1103.5.1 Group A-2. Where a Group A-2 occupancy has an occupant load of 200 or more, the fire area containing the Group A-2 occupancy shall be equipped with an automatic sprinkler system in accordance with Section 903.3.1.1.

Subsection 1103.5.3 is amended by deleting and substituting in lieu thereof:

1103.5.3 Group I-2, Condition 2. In addition to the requirements of Section 1103.5.2, existing buildings of Group I-2, Condition 2 occupancy shall be equipped throughout with an approved automatic sprinkler system in accordance with Section 903.3.1.1. The automatic sprinkler system shall be installed by January 1st, 2027.

Adding the following subsection:

1103.11 Monitoring of fire alarm and sprinkler systems. Existing fire alarm and sprinkler systems not electrically monitored by a listed monitoring service shall comply with Section 903.4.2 and 907.6.6.

Deleting subsection 1104.16 in its entirety.

Subsection 2303.2 is amended by deleting and substituting in lieu thereof:

2303.2 Emergency disconnect switches. An approved emergency disconnect switch shall be provided at an approved location to stop the transfer of fuel to the fuel dispensers in the event of a fuel spill or other emergency. The emergency disconnect switch for

exterior fuel dispensers shall be provided with ready access and shall be located within 100 feet (30,480 mm) of, but not less than 20 feet (6,096 mm) from, the fuel dispensers. For interior fuel-dispensing operations, the emergency disconnect switch shall be provided with ready access and be installed at an approved location. Such devices shall be distinctly labeled as: "EMERGENCY FUEL SHUTOFF." Signs shall be provided in approved locations. All emergency disconnect switches shall comply with NFPA 30A.

Subsection 2305.2.1 is amended by deleting and substituting in lieu thereof:

2305.2.1 Inspections. Flammable and combustible liquid fuel-dispensing and containment equipment shall be periodically inspected where required by the fire code official in accordance with Section 6.3.6 of NFPA 30A to verify that the equipment is in proper working order and not subject to leakage. Records of inspections shall be maintained.

Adding the following subsection:

2408.5.1 Smoking. Smoking shall be prohibited in areas where organic peroxides are stored, mixed, or applied and NO SMOKING signs shall be prominently displayed in these areas.

Subsection 3307.1.2 is amended by deleting and substituting in lieu thereof:

3307.1.2 Stairways required. In all buildings over one story in height, at least one stairway shall be provided that is in usable condition at all times and that meets the requirements of Section 1011. This stairway shall be extended upward as each floor is installed in new construction and maintained for each floor still remaining during demolition. The stairway shall be lighted. During construction, the stairway shall be enclosed where the building exterior walls are in place. All exit stairs shall be provided with stair identification signs to include the floor level, stair designation, and exit path direction as required to provide for safer egress.

Adding the following subsection:

3408.3 Manual firefighting equipment. At a minimum, the following items shall be maintained on site and in working order:

1. One 2-A:10-B:C fire extinguisher
2. One 2.5 gal (10 L) water extinguisher
3. One 10 ft (3 m) long pike pole
4. One rigid rake
5. One round point shovel
6. One square point shovel
7. The AHJ shall be permitted to require additional tools and equipment for the fire control and the protection of life and property. This can include but is not limited to the availability of earth-moving equipment or other approved means of controlling a fire.

Subsection 3601.1 is amended by deleting and substituting in lieu thereof:

3601.1 Scope. Marina facilities shall be in accordance with this chapter and NFPA 303.

Subsection 4104.2 is amended by deleting and substituting in lieu thereof:

4104.2 Open-flame cooking devices. For other than one- and two-family dwellings, no hibachi, grill, or other similar devices used for cooking, heating, or any other purpose shall be used, kindled, or stored on any balcony, under any overhanging portion, or within 10 ft (3 m) of any structure.

Exception: Listed equipment permanently installed in accordance with its listing, applicable codes, and manufacturer's instructions shall be permitted.

Deleting subsection 4104.3 in its entirety.

Subsection 4106.2 is amended by deleting and substituting in lieu thereof:

4106.2 Permit required. Permits shall be required as set forth in Section 105.5.

Exception: Mobile food preparation vehicles with a valid permit issued by the Tennessee State Fire Marshal's Office.

Adding the following subsection:

4106.6 Location. Mobile food preparation vehicles shall not be operated within ten (10) feet of any building, means of egress, or other mobile food preparation vehicle.

Subsection 5704.2.9.6.1.3 is amended by deleting and substituting in lieu thereof:

5704.2.9.6.1.3 Location of tanks storing boilover liquids. Above-ground tanks for storage of liquids with boilover characteristics shall be located in accordance with Table 22.4.1.4.1 of NFPA 30.

Subsection 5704.2.9.6.1.5 is amended by deleting and substituting in lieu thereof:

5704.2.9.6.1.5 Location of tanks storing Class IIIB liquids. Above-ground tanks for the storage of Class IIIB liquids, excluding unstable liquids, shall be located in accordance with Table 22.4.1.5 of NFPA 30, except where located within a diked area or drainage path for a tank or tanks storing Class I or II liquids. Where a Class IIIB liquid storage tank is within the diked area or drainage path of a Class I or II liquid, distances required by Section 5704.2.9.6.1.1 shall apply.

Subsection 6201.1 is amended by deleting and substituting in lieu thereof:

6201.1 Scope. The storage and use of organic peroxides shall be in accordance with this chapter, Chapter 50,

and NFPA 400. Unclassified detonable organic peroxides that are capable of detonation in their normal shipping containers under conditions of fire exposure shall be stored in accordance with Chapter 56.

Subsection 6301.1 is amended by deleting and substituting in lieu thereof:

6301.1 Scope. The storage and use of oxidizing materials shall be in accordance with this chapter, Chapter 50, and NFPA 400. Oxidizing gases shall also comply with Chapter 53. Oxidizing cryogenic fluids shall also comply with Chapter 55.

Exceptions:

1. Display and storage in Group M and storage in Group S occupancies with Section 5003.11.
2. Bulk oxygen systems at industrial and institutional consumer sites shall be in accordance with NFPA 55.
3. Liquid oxygen stored or used in home health care in Group I-1, I-4 and R occupancies in accordance with Section 6306.

Subsection 6401.1 is amended by deleting and substituting in lieu thereof:

6401.1 Scope. The storage and use of pyrophoric materials shall be in accordance with this chapter and NFPA 400. Compressed gases shall also comply with Chapter 53.

Subsection 6601.1 is amended by deleting and substituting in lieu thereof:

6601.1 Scope. The storage and use of unstable (reactive) materials shall be in accordance with this chapter and NFPA 400. Compressed gases shall also comply with Chapter 53.

Subsection 6701.1 is amended by deleting and substituting in lieu thereof:

6701.1 Scope. The storage and use of water-reactive solids and liquids shall be in accordance with this chapter and NFPA 400.

i. Exceptions:

1. Display and storage in Group M and storage in Group S occupancies complying with Section 5003.11.
2. Detonable water-reactive solids and liquids shall be stored in accordance with Chapter 56.

Chapter 80 Referenced Standards is amended by deleting and substituting in lieu thereof the following specified entries:

NFPA

30A—24: Code for Motor Fuel Dispensing Facilities and Repair Garages

2301.4, 2301.5, 2301.6, 2303.2, 2305.2.1, 2306.6.3, 2310.1

101—24: Life Safety Code

102.9.1, 1010.2.7, 1030.6.2

400—22: Hazardous Materials Code

5601.1.5, 6201.1, 6301.1, Table 6303.1.4, 6304.1.2, Table 6304.1.5(1), Table 6304.1.5(2), 6401.1, 6601.1

Apply the following additions and amendments to Appendix D as follows:

Section D102.1 of Appendix D is amended by deleting and substituting in lieu thereof:

D102.1 Access and loading. Facilities, buildings or portions of buildings hereafter constructed shall be accessible to fire department apparatus by way of an approved fire apparatus access road with an asphalt, concrete or other approved driving surface capable of supporting the imposed load of fire apparatus weighing up to 87,000 pounds (39,463 kg).

Section D103.1 of Appendix D is amended by deleting and substituting in lieu thereof:

D103.1 Access road width with a hydrant. Where a fire hydrant is located on a fire apparatus access road, the minimum road width shall be 24 feet (7,316 mm), exclusive of shoulders (see Figure D103.1).

Section D103.2 of Appendix D is amended by deleting and substituting in lieu thereof:

D103.2 Grade. Fire apparatus access roads shall not exceed 12 percent in grade.

Exception: Grades steeper than 12 percent as approved by the fire code official.

Section D103.4 of Appendix D is amended by deleting and substituting in lieu thereof:

D103.4 Dead ends. Dead-end fire apparatus access roads in excess of 150 feet shall be provided with width and turnaround provisions in accordance with Table D103.4.

Exception: The fire code official is authorized to accept alternate dimensions where it is demonstrated that the departments largest apparatus can complete the turnaround with one backing maneuver.

Table D103.4 of Appendix D is amended by adjusting the width to be 24 feet for lengths 501 through 750.

Section D104.1 of Appendix D is amended by deleting and substituting in lieu thereof:

D104.1 Buildings exceeding three stories or 30 feet in height. Buildings or facilities exceeding 30 feet (9,144 mm) or three stories in height shall have not fewer than two means of fire apparatus access for each structure, with at least one fire department access road meeting the requirements of D105.

Section D104.2 of Appendix D is amended by deleting and substituting in lieu thereof:

D104.2 Buildings exceeding 62,000 square feet in area. Buildings or facilities having a gross building

area of more than 62,000 square feet (5,760 square meters) shall provide fire department access in accordance with at least one of the following:

1. Two separate and approved fire apparatus access roads

2. A divided entrance with a minimum of 24 feet per side connected to a minimum 30 feet wide fire apparatus access road of no greater than 500 feet in length.

Exception: Projects having a gross building area of up to 124,000 square feet that have a single approved access road where all buildings are equipped throughout with approved automatic sprinkler systems.

Appendix D is hereby amended by adding the following subsection:

D104.3.1 Remoteness feasibility. The fire code official is authorized to modify the requirements in D104.3 where topography, waterways, easements, or other property restrictions make compliance impractical or technically infeasible.

Section D105.1 of Appendix D is amended by deleting and substituting in lieu thereof:

D105.1 Where required. Where the vertical distance between the grade plane and the highest roof surface exceeds 30 feet (9,144 mm), approved aerial fire apparatus access roads shall be provided. For purposes of this section, the highest roof surface shall be determined by measurement to the eave of a pitched roof, the intersection of the roof to the exterior wall, or the top of parapet walls, whichever is greater.

Exceptions:

1. Where approved by the fire code official, buildings of Type IA, IB or IIA construction equipped throughout with an automatic sprinkler system installed in accordance with Section 903.1.1 and having firefighter access through an enclosed stairway with a Class I standpipe from the lowest level of fire department vehicle access to all roof surfaces.

2. For determining the need for aerial access, the height of one- and two-family dwellings and townhouses not exceeding three stories, shall be measured to the eave of a pitched roof, the intersection of the roof to the exterior wall, the top of parapet walls, or the highest window of the highest occupied story.

Section D105.2 of Appendix D is amended by deleting and substituting in lieu thereof:

D105.2 Width. Aerial fire apparatus access roads shall have a minimum unobstructed width of 24 feet (7,925 mm), exclusive of shoulders, in the immediate vicinity of the building or portion thereof.

Appendix D is hereby amended by adding the following subsection:

D106.3.1 Remoteness feasibility. The fire code official is authorized to modify the requirements in D104.3 where topography, waterways, easements or other property restrictions make compliance impractical or technically infeasible.

Section D107.1 of Appendix D is amended by deleting and substituting in lieu thereof:

D107.1 One- or two-family dwelling residential developments. Developments of one- or two-family dwellings where the number of dwelling units exceeds 50 shall be provided with two separate and approved fire apparatus access roads.

Exceptions:

1. Where there are between 50—99 dwelling units accessed from a single public or private fire apparatus access road and all dwelling units are equipped throughout with an approved automatic sprinkler system, access from two directions shall not be required.

2. The number of dwelling units accessed from a single fire apparatus access road shall not be increased unless fire apparatus access roads will connect with future development, as determined by the fire code official.

3. A divided entrance with a minimum of 24 feet per side connected to a minimum 30 feet wide fire apparatus access road of no greater than 500 feet in length, connecting to a looped access road providing access from two directions.

Appendix D is hereby amended by adding the following subsection:

D107.2.1 Remoteness feasibility. The fire code official is authorized to modify the requirements in D104.3 where topography, waterways, easements, or other property restrictions make compliance impractical or technically infeasible.

Apply the following additions and amendments to Appendix L as follows:

Section L101.1 of Appendix L is amended by deleting and substituting in lieu thereof:

L101.1 Scope. Firefighter air replenishment systems (FARS) shall be provided in accordance with this appendix and any related policy implemented by the AHJ.

Adding the following subsection:

7.3.1.2.1 At the discretion of the fire code official, limits or restrictions may be imposed on occupant load calculations when hazardous conditions or a reduction in life safety features exist, including but not limited to existing infrastructure, building construc-

tion, limited fire department access, clear egress limits to the public way, and natural or man-made egress restrictions. Any potential limits or restrictions on occupant load calculations may be imposed on a temporary or permanent basis, pending any required documentation has been received and reviewed by the authority having jurisdiction, and a determination can be made regarding the ability to mitigate the hazardous conditions or reduction in life safety features.

Subsection 7.7.1 is amended by deleting and substituting in lieu thereof:

7.7.1 Exit Termination—Exits shall terminate directly, at a public way or at an exterior exit discharge acceptable to the AHJ, unless otherwise provided in 7.7.1.2 through 7.7.1.4.

Subsection 13.3.5.1 is amended by deleting and substituting in lieu thereof:

13.3.5.1 Where the occupant load exceeds 200, the following assembly occupancies shall be protected throughout by an approved, electrically supervised automatic sprinkler system in accordance with 9.7.1.1(1) and 9.7.2:

1. Dance halls
2. Discotheques
3. Nightclubs
4. Assembly occupancies with festival seating

Clarify that Chapter 24, to the extent that it references one- and two-family dwellings, is hereby inapplicable to the scope of duties of the fire marshal's office. Therefore, Chapter 24, except where specifically referenced, is inapplicable.

(Ord. BL2025-1004 §§ 2—124, 2025; Ord. BL2022-1373 §§ 6, 7, 2022; Ord. BL2021-658 § 3, 2021; Ord. BL2015-1145 § 2, 2015; Ord. BL2008-350, § 2, 2009, eff. 10-30-2009; Ord. BL2007-1390 § 3, 2007; Ord. BL2002-1142 § 9, 2002)

10.64.013 Issuance of permits.

Before permits may be issued as required by this section and the codes, annexes and appendixes adopted by this section, the fire chief or a delegate shall inspect and approve the receptacles, processes, vehicles, buildings or storage places to be used for any such purposes. (Ord. BL2021-658 § 4, 2021)

10.64.014 Application.

The provisions of this section and the codes and appendixes adopted by this section shall apply equally to both public and private property, and to all structures and their occupancies, except as otherwise specified. The provisions of the fire code adopted by this section shall govern the manner in which:

A. The codes are applied to new commercial and service institutional construction and existing commercial and service institutional buildings.

B. Occupancies and types of construction are classified for the purpose of determining minimum code requirements.

C. The specific requirements of the codes may be modified to permit the use of alternate materials or methods of construction. (Ord. BL2021-658 § 5, 2021)

10.64.015 Hazardous substances.

A. Definitions. As used in this section, the following terms shall be defined as follows:

"Costs" mean those necessary and reasonable costs incurred by the city in connection with investigating, mitigating, minimizing, removing or abating discharges of hazardous substances, including, but not limited to, the following: actual labor costs of city personnel or its authorized agents; cost of equipment operation and rental; and cost of expendable items including, but not limited to, firefighting foam, chemical extinguishing agents, absorbent material, sand, recovery drums, acid suits, acid gloves, goggles and protective clothing.

"Discharge" means any intentional or unintentional action or omission resulting in the releasing, spilling, pumping, pouring, emitting, emptying or dumping of a hazardous substance upon public or private property located within the city limits.

"Hazardous substances" mean any substances or materials in a quantity or form, which, in the determination of the fire chief or his authorized designee, poses an unreasonable and imminent risk to the life, health, safety or welfare of persons or property within the city, and shall include, but not be limited to those hazardous substances listed in the N.F.P.A. Guide on Hazardous Materials or the E.P.A.'s list of extremely hazardous substances.

"Person" means one or more individuals, partnerships, corporations, joint ventures, associations or any other entities or any combination thereof.

B. Fire Department's Authority. The fire department is hereby authorized to take such steps as necessary to clean up, remove or abate the effects of any hazardous substances discharged upon or into public or private property or facilities located within the limits of the city.

C. Persons Responsible for Unauthorized Discharges to be Liable to the City Fire Department. Any person responsible for causing or allowing an unauthorized discharge of hazardous substances that requires emergency

action of the city's fire department or its authorized agents in order to protect the public health, safety or welfare shall be jointly and severally liable to the city for the costs incurred by the city in investigating, mitigating, minimizing, removing and abating any such discharge.

D. Fire Department to Keep Records of Cleanup Costs. When responding to the emergency caused by the unauthorized discharge of hazardous substances, the city's fire department shall keep a detailed record of the costs attributable thereto.

E. Unlawful Dischargers to Reimburse City for Cleanup Costs. Any person responsible for causing or allowing an unauthorized discharge of hazardous substances shall reimburse the city for the full amount of all costs, as defined herein, associated with investigating, mitigating, minimizing, removing and abating any such discharge within a period of thirty days after receipt of an itemized bill for such costs from the city.

F. Penalty for Late Payment of Cleanup Costs. Any person responsible for causing or allowing an unauthorized discharge of hazardous substances and who fails to promptly reimburse the city within the time set forth in subsection (E) of this section shall be subject to a penalty payment equal to five percent of the total amount of the bill for each month that the bill for such costs remains unpaid.

G. Remedies Supplemental to Other Remedies. The remedy provided for in this section shall be supplemental to and in addition to all other available remedies at law and equity. (Ord. BL2021-658 § 6, 2021; Ord. BL2015-1145 § 3, 2015; Ord. BL2009-509 § 1, 2009; Ord. No. BL2008-350, § 3, 2009, eff. 10-30-2009; Ord. BL2008-332 §§ 1—4, 2008; Ord. BL2007-1390 § 4, 2007; Ord. BL2002-1142 § 10, 2002)

10.64.016 Penalty.

Any person who shall violate any of the provisions of the codes and appendixes adopted by this Section; or shall fail to comply therewith; or shall violate or fail to comply with any order made thereunder; or shall build in violation of any details, statements, specifications or plans submitted or approved thereunder; or shall operate not in accordance with the provisions of any certificate, permit or approval issued thereunder, and from which no appeal has been taken; or who shall fail to comply with such an order as affirmed or modified by the fire chief or by a court of competent jurisdiction within the time fixed herein shall severally for each and every violation and noncompliance, respectively, be penalized by a civil penalty as provided for in Chapter 1.24 of the Metropolitan Code of Ordinances. The imposition of a penalty for any violation shall not excuse the violation nor shall the violation be permitted to continue. All such persons shall be required to correct or remedy such violations or defects within a reasonable time, and when not otherwise specified, the application of the above penalty shall not be held to prevent the enforced removal of prohibited conditions. (Ord. BL2021-658 § 7, 2021; Ord. BL2015-1145 § 4, 2015; Ord. BL2008-350, § 4, 2009, eff. 10-30-2009)

10.64.017 Open burning.

It is the intent and purpose of this section to protect the citizens of Nashville from injury arising from hazards and public nuisances and to reduce the accidental spread of fire for the benefit of the health, safety, general welfare and physical property of the people. The city shall seek the accomplishment of these objectives through the regulation of open burning as adopted and set forth herein.

A. Definitions. The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

"Air curtain destructor" or "air curtain incinerator" means a portable or stationery combustion device that directs a plane of high velocity forced draft air through a manifold head into a burn chamber with vertical walls in such a manner as to maintain a curtain of air over the surface of the burn chamber and a recirculating motion of air under the curtain.

"Cooking fire" means the noncommercial, residential burning of materials not exceeding 3 ft. (0.9 m) in diameter and 2 ft. (0.6 m) in height, other than rubbish in which the fuel burned is contained in an outdoor fireplace, a barbecue grill, or a barbecue pit for the purpose of preparing food.

"Fire marshal" means the duly appointed fire marshal or acting fire marshal of the city.

"Open burning" means the burning of any matter under such conditions that products of combustion are emitted directly into the open atmosphere without passing directly through a stack.

"Recreational fire" means the noncommercial burning of materials other than rubbish for pleasure, religious, ceremonial, cooking, or similar purposes in which the fuel burned is not contained in an incinerator, a barbecue grill, or a barbecue pit, and the total fuel area is not exceeding 3 ft. (0.9 m) in diameter and 2 ft. (0.6 m) in height.

B. The burning of tires and other rubber products, vinyl shingles and siding, other plastics, asphalt shingles and other asphalt roofing materials and/or asbestos containing materials is expressly prohibited, and such materials shall not be included in any open burning

conducted under the provisions of this section. Furthermore, burning for the purpose of disposing of construction or demolition waste or debris not otherwise described herein is expressly prohibited, and such waste or debris shall not be included in any open burning conducted under the provisions of this section.

C. No open burning shall be allowed except under the following conditions and their restrictions:

(1) Ceremonial or recreational fires.

(a) Any permit required by the fire marshal or director of public health shall be obtained prior to burning.

(b) Shall be of reasonable size and duration.

(c) Shall not be conducted within twenty-five feet of a structure or combustible material.

(d) Conditions that could cause a fire to spread within twenty-five feet of a structure shall be eliminated prior to ignition.

(e) No prohibited materials shall be burned for such fires.

(f) An approved water supply shall be present in the immediate vicinity of the burn site to be used for extinguishment as necessary.

(g) A minimum 2A-10BC fire extinguisher shall be present in the immediate vicinity of the burn site to be used for extinguishment as necessary.

(2) Outdoor fireplaces or outdoor noncommercial food preparation.

(a) Outdoor fireplaces or portable charcoal or gas barbecue grills shall be prohibited within fifteen feet of any structure in which more than two dwelling units are located or combustible material.

(b) No prohibited materials shall be burned for such fires.

(c) Shall be used in accordance with the manufacturer's instructions.

(3) Burning for the purpose of clearing vegetation from land for new development or a change in the use of the land shall be permitted only if:

(a) The burning will take place at least five hundred feet from any occupied building, roadway, walkway or any other location as may be specified by the fire marshal.

(b) The materials to be burned consist solely of vegetation grown on the property containing the burn site.

(c) The materials to be burned are placed in a pit and an air curtain destructor or air curtain incinerator is used.

(d) Priming materials used to facilitate such burning are limited to #1 or #2 grade fuel oils.

(e) The burning occurs between the hours of 7:00 a.m. and dark.

(f) All appropriate permits have been issued from the fire marshal and the metro public health director.

(4) Burning for the purpose of disposing of detached tree limbs and leaves shall be permitted only if:

(a) The burning will take place at least three hundred feet away from any adjacent lot or tract with a residential dwelling or other occupied structure.

(b) The materials to be burned consist solely of leaves and limbs gathered from the property containing the burn site.

(c) The materials to be burned are placed in a pit and an air curtain destructor or air curtain incinerator is used, if the fire marshal has instructed that an air curtain destructor or air curtain incinerator is to be used, based on the size and location of the burn and other relevant safety issues.

(d) Priming materials used to facilitate such burning are limited to #1 or #2 grade fuel oils.

(e) The burning occurs between the hours of 9:00 a.m. and 3:30 p.m.

(f) All appropriate permits have been issued from the fire marshal and the metro public health director, as required.

(5) Neither the exceptions allowed hereunder, nor the granting of a permit shall relieve any person of liability for injuries or damage caused by such open burning, nor shall an exception or permit relieve any person of the responsibility to obtain any other permit required by any other agency, or of complying with other applicable requirements, ordinances, statutes, or restrictions.

(6) In the event the fire marshal or the fire marshal's representative determines a fire to be a nuisance to adjacent property owners or occupants or to the public at large, the fire marshal or the fire marshal's representative shall order the fire to be extinguished immediately by any means or, if necessary, the fire department may extinguish the fire.

(7) The fire marshal or the fire marshal's representative along with the director of public health may order all open burning temporarily stopped at any time due to weather conditions or other environmental conditions which may cause open burning to pose a significant public health or safety risk. (Ord. BL2025-1004 § 125, 2025; Ord. BL2021-658 § 8, 2021; Ord. BL2015-1145 § 5, 2015; Ord. No. BL-2008-350, § 5, 2009, eff. 10-30-2009; Ord. BL2007-1390 § 5, 2007; Ord. BL2002-1142 § 11, 2002; Ord. 98-1445 §§ 7—21, 1998)

10.64.018 Fee schedule.

A. The fire marshal's office shall charge the following operational permit fees:

1. Aerosol products storage (by quantity): $119.00.

2. Air curtain—Open burning: $151.00.
3. Amusement buildings: $151.00.
4. Aviation facilities: $151.00.
5. Blasting—Explosives: $285.00.
6. Carnivals/Fairs: $151.00.
7. Cellulose nitrate film: $151.00.
8. Combustible dust-producing operations: $151.00.
9. Combustible fibers: $151.00.
10. Combustible storage, misc.: $151.00.
11. Compressed gases (normal temperature and pressure): $151.00.
12. Concession trailer/food truck (mobile food vendors): $151.00.
13. Cryogenic fluids: $151.00.
14. Cutting and welding: $151.00.
15. Dry cleaning: $151.00.
16. Exhibits and trade shows: $151.00.
17. Explosives: $166.00.
18. Fire alarm plan review per each 50 devices or fraction thereof: $58.00
19. Flammable and combustible liquids: $149.00.
20. Hazardous materials storage: $151.00.
21. Hazardous production materials (HPM): $151.00.
22. High-piled storage: $151.00.
23. Hot work operations: $151.00.
24. Industrial ovens: $151.00.
25. Knox Box annual permit: $58.00
26. Lumber yards and woodworking plants: $209.00.
27. Liquid- or gas-fueled vehicles or equipment in assembly buildings: $151.00.
28. LP gas: $149.00.
29. Magnesium: $151.00.
30. Miscellaneous combustible storage: $111.00.
31. Open burning: $222.00.
32. Open flames and candles: $151.00.
33. Organic coatings: $151.00.
34. Places of assembly: $224.00.
35. Places of assembly > 10,000 sf: $384.00.
36. Private fire hydrants: $117.00 (up to four hydrants).
37. Pyrotechnic fees: $290.00.
38. Pyroxylin plastics: $151.00.
39. Refrigeration equipment: $151.00.
40. Repair garages and motor fuel-dispensing facilities: $151.00.
41. Special event—After hours standby: $213.00.
42. Special event—Inspection after hours: $350.00.
43. Special event fire watch per hour—Owner provided: $88.00.
44. Spraying and dipping: $151.00.
45. Sprinkler plan review and permit per each 50 sprinkler heads: $191.00.
46. Temporary membrane structures and tents: $149.00.
47. Tire-rebuilding plants: $151.00.
48. Wood products: $151.00.
49. Reinspection fee: $59.00.

B. Future modifications to the fire marshal's office fee schedule shall be approved by a resolution adopted by the metropolitan council. (Res. RS2022-1648 § 1, 2022; Ord. BL2018-1187 § 1, 2018)

10.64.019 Failure to submit application within designated timeframe—Expedite fees.

A. All permit applications for fire department permits shall be submitted to the fire marshal's Office no less than ten business days prior to the commencement of any work, operation, or condition for which a fire department permit is required, or the date of expiration of a current fire department permit.

B. If an application for a fire department permit is submitted to the fire marshal's office between three and ten business days prior to the commencement of any work, operation, or condition for which a fire department permit is required, or the date of expiration of a current fire department permit, the application shall be subject to an expedite fee of one hundred seventy-five dollars.

C. If an application for a fire department permit is submitted to the fire marshal's office with less than three business days prior to the commencement of any work, operation, or condition for which a fire department permit is required, or the date of expiration of a current fire department permit, the application shall be subject to an expedite fee of one hundred seventy-five dollars or denial. (Ord. BL2025-1004 § 126, 2025)

10.64.020 Failure to obtain a permit—Fees tripled.

A. Where any type of work, operation, or condition for which a fire department permit is required and the permit is not issued prior to the commencement of the work, operation, or condition, the permit cost shall be not less than three hundred percent of the initial permit cost, in addition to any other penalty imposed for failure to obtain a required fire department permit. (Ord. BL2025-1004 § 127, 2025)

10.64.021 Transferability of permit.

A. Any permit issued in accordance with the provisions of this chapter is not transferable without prior approval from the authority having jurisdiction. (Ord. BL2025-1004 § 128, 2025)

10.64.022 Suspension or revocation of permit.

A. The fire code official is authorized to revoke an issued permit where it is found by inspection or otherwise that there has been a false statement or misrepresentation on which the permit or approval was based. (Ord. BL2025-1004 § 129, 2025)

10.64.023 Failure of service providers to submit ITM reports within designated timeframe.

A. All life safety/fire protection systems installed in Metro Nashville/Davidson County shall be inspected, tested, and maintained according to the referenced edition of the associated NFPA code or standard related to that system in the Metropolitan Fire Code.

B. All systems shall be inspected, tested, and maintained by a trained, qualified, and certified person(s) (hereafter referred to as "service provider").

C. The service provider that will inspect, test, or maintain these systems shall prepare a report (hereafter referred to as "ITM report") detailing their findings per the applicable NFPA codes or standards related to the system being serviced.

D. A copy of the ITM report shall be submitted to the fire marshal's office (FMO), via the 3rd party system utilized by the FMO, within five days from the date the inspection took place.

E. Any updates to deficient systems shall be notated within the third-party reporting system, within three business days.

F. Any service provider that fails to submit an ITM report to the FMO within the above timeframe shall be considered in violation of this code, and subject to a penalty from the FMO. (Ord. BL2025-1004 § 130, 2025)

Article II. No-Smoking Regulations

10.64.024 Prohibited smoking areas—Exceptions.

No person shall smoke or carry a lighted cigar, cigarette, pipe or match, or use any spark-producing, flame-producing or fire-producing device not specifically authorized for use in such place by the fire marshal in any of the following places:

A. Exception for Approved Areas. The prohibition shall not apply to smoking in restrooms, restaurants, executive offices or beauty parlors in retail stores when specifically approved by the fire marshal by written order to the person having control of the premises upon a finding that such use therein is not dangerous to life or property.

B. Elevators. Elevators, regardless of capacity, in any public place.

C. Public Theaters. During a performance in public theaters, motion picture houses or other auditoriums used for such purposes:

1. Exception for Approved Areas. The prohibition of this subsection shall not apply to smoking rooms and areas and restrooms when specifically approved by the fire marshal by written order to the person having control of the premises upon a finding that such use therein is not dangerous to life or property.

2. Exception for Performers. The prohibition of this subsection shall not be construed to prohibit smoking by performers upon the stage as part of any theatrical production.

D. Projection Booths. Any projection booth, enclosure or other room in a public place in which any motion pictures machine is operated.

E. Public Conveyances. Buses or other public conveyances, except taxicabs.

F. Dance Floors. Dance floor of any cabaret, restaurant, nightclub or other public place offering facilities for dining and dancing. (Ord. BL2025-1004 § 131, 2025; prior code § 17-1-1.2(a))

10.64.030 No-smoking signs—Authorized when.

The fire marshal shall have the authority to order "No Smoking" signs erected in any place of public assemblage where, in his opinion, smoking, or the carrying of a lighted cigar, cigarette, pipe or match, or any use of any spark-producing, flame-producing or fire-producing device not specifically authorized for use in such place would constitute a menace to life or property. (Prior code § 17-1-1.2(b))

10.64.040 No-smoking signs—Display required when.

Every person, or his agent, having control of premises upon which smoking or the carrying of lighted objects is prohibited by or under the authority of this article shall conspicuously display upon the premises a sign reading "No Smoking." (Prior code § 17-1-1.2(c))

Chapter 10.68

FIREWORKS*

Sections:

10.68.010	**Fireworks defined—Labeling required.**
10.68.020	**Use restrictions—Permits granted when.**
10.68.030	**Bond required.**
10.68.040	**Financial responsibility required.**
10.68.050	**Appointment of attorney required for out-of-county residents.**
10.68.060	**Sales regulations.**
10.68.070	**Seizure authorized when.**
10.68.080	**Conflict of provisions.**
10.68.090	**Violation and penalty.**

10.68.010 Fireworks defined—Labeling required.

A. The term "fireworks" means and includes any combustible or explosive composition, or any substance or combination of substances, or article prepared for the purpose of producing a visible or an audible effect by combustion, explosion, deflagration or detonation, and shall include blank cartridges, toy pistols, toy cannons, toy canes or toy guns in which explosives are used, the type of unmanned balloons which require fire underneath to propel the same, firecrackers, torpedoes, skyrockets, Roman candles, Daygo bombs, sparklers, and other fireworks of like construction and any fireworks containing any explosive or flammable compound, or any tablets or other device containing any explosive substance, except that the term "fireworks" does not include model rockets and model rocket engines designed, sold and used for the purpose of propelling recoverable aero models and does not include toy pistols, toy canes, toy guns or other devices in which paper and/or plastic caps manufactured in accordance with the United States Department of Transportation regulations for packing and shipping of toy paper and/or plastic caps are used and toy paper and/or plastic caps manufactured as provided therein, the sale and use of which shall be permitted at all times. Further, the term 'fireworks' does not include canons or rifles used as part of an outdoor memorial service or commemoration, provided no projectile is expelled from such canon or rifle. The metropolitan police department must be notified at least twenty-four hours prior to discharging a rifle or canon exempted from the definition of 'fireworks' herein, and persons discharging such rifle or canon shall comply with all federal regulations for the storage and handling of black powder for domestic use.

B. Each package containing toy paper and/or plastic caps offered for retail sale shall be labeled to indicate the maximum explosive content per cap. (Ord. BL2011-939 § 1, 2011; prior code § 17-1-31)

10.68.020 Use restrictions—Permits granted when.

Except as hereinafter provided, no person, firm, partnership or corporation shall offer for sale, expose for sale, sell at retail, keep with intent to sell at retail, or use or explode any fireworks in Davidson County; provided, that the fire marshal of the Metropolitan Government of Nashville and Davidson County may adopt reasonable rules and regulations for the granting of permits for supervised displays of fireworks by fair associations, amusement parks, and other organizations or groups of individuals. Such permits may be granted upon application to the fire marshal and the filing of a bond by the applicant as provided hereinafter. Every such display shall be handled by a competent operator licensed or certified as to competency by the fire marshal and shall be of such composition and character, and so located, discharged or fired as in the opinion of the fire marshal shall not be hazardous to property or endanger any person or persons. After such privilege shall have been granted, sales, possession, use and distribution of fireworks for such display is lawful for that purpose only. No permit granted hereunder shall be transferable. (Prior code § 17-1-32)

10.68.030 Bond required.

The fire marshal shall require a bond from the licensee in a sum not less than one thousand dollars conditioned on compliance with the provisions of this chapter and the regulations of the fire marshal adopted herein, provided no municipality shall be required to file such bond. (Prior code § 17-1-33)

10.68.040 Financial responsibility required.

Before any permit for a pyrotechnic display shall be issued, the person, firm, partnership or corporation making application therefor shall furnish proof of financial responsibility to satisfy claims for damages to property or personal injuries arising out of any act or omission on the part of such person, firm, partnership, corporation or any agent or employee thereof, in such amount, character and form as the fire marshal determines to be necessary for the protection of the public. (Prior code § 17-1-34)

***State law reference—**Fireworks, T.C.A. § 68-104-101 et seq.

10.68.050 Appointment of attorney required for out-of-county residents.

No permit shall be issued under the provisions of this chapter to a person, firm, partnership or corporation not a resident of Davidson County for conduct of a pyrotechnic display until such person, firm or corporation shall have appointed in writing an attorney licensed to practice law in the State of Tennessee and residing therein to be his attorney upon whom all process in any civil action or proceeding against him may be served. (Prior code § 17-1-35)

10.68.060 Sales regulations.

Nothing in this chapter shall be construed to prohibit any resident, wholesaler, dealer or jobber to sell at wholesale such fireworks as are not herein prohibited or the sale of any kind of fireworks, provided the same are to be shipped directly out of the area of the Metropolitan Government of Nashville and Davidson County in accordance with the regulations of the U. S. Department of Transportation covering the transportation of explosives and other dangerous articles by motor, rail and water or the use of fireworks by railroads or other transportation agencies for signal purposes or illumination, or the sale or use of blank cartridges for theater, or for military organizations, or the use of fireworks for agricultural purposes under conditions approved by the fire marshal. (Prior code § 17-1-36)

10.68.070 Seizure authorized when.

The fire marshal shall seize, take, remove or cause to be removed at the expense of the owner all stocks of fireworks or combustibles offered or exposed for sale, stored or held in violation of this chapter. The fire marshal shall store and maintain seized fireworks and dispose of them as ordered by a court of competent jurisdiction. Seized fireworks shall in no event be returned to the person from whom seized until all appellate remedies are exhausted. The confiscation and forfeiture of fireworks being an action "in rem," the Metropolitan Government of Nashville and Davidson County shall have the right to appeal an order restoring the seized fireworks to the person from whom seized. (Prior code § 17-1-37)

10.68.080 Conflict of provisions.

This chapter shall take effect and repeal contrary provisions of the National Fire Protection Association Code, Sections 1-7.2 and 1-2.4.2. Any provision of any ordinance of the Metropolitan Government of Nashville and Davidson County inconsistent with any provision of this chapter is repealed. (Prior code § 17-1-39)

10.68.090 Violation and penalty.

Any person, firm, partnership or corporation violating the provisions of this chapter shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not exceeding fifty dollars. (Prior code § 17-1-38)

Chapter 10.70

REMOVAL OF DEAD ANIMALS

Sections:

10.70.010	**Removal from public right-of-way.**
10.70.020	**Removal from private property.**
10.70.030	**Delivery to board of health.**
10.70.040	**Joint authority.**

10.70.010 Removal from public right-of-way.

Upon receiving notice of a dead animal being located within the public right-of-way, the department shall as expeditiously as possible, remove said animal for disposal in accordance with the provisions of Section 10.70.030. (Ord. BL2000-500 § 1, 2000)

10.70.020 Removal from private property.

A. Upon receiving notice of a dead animal being located on private property, the department shall attempt to locate the owner of record of such private property. If the owner can be contacted, then the dead animal will be removed as expeditiously as possible by the department for disposal in accordance with the provisions of Section 10.70.030, provided that the authorization and release attached hereto is executed by the owner or his authorized representative.

B. If the owner refuses to execute said authorization and release, then it shall be the responsibility of the owner to remove the dead animal within forty-eight hours of notification from the department to do so; and to cause the animal's remains to be disposed of in an appropriate manner, all at the property owner's expense.

C. If the property owner has not been located and contacted within two business days of the metropolitan government's receipt of notice of the presence of the animal, the department of public works is authorized, subject to the written certification of the director of health pursuant to Section 2.36.020, to enter upon the property upon which the animal is located for the purpose of removing the animal for disposal in accordance with the provisions of Section 10.70.030 hereof. In the absence of such written certification, removal of the dead animal shall be the responsibility of the owner of the property pursuant to subsection B of this section.

D. The failure of a property owner, upon receipt of notice from the department to comply with the provisions of this ordinance either by promptly executing the authorization and release attached hereto, or, in the alternative, complying with the provisions of subsection B of this section, shall be punishable by a penalty not to exceed five hundred dollars, with each day of noncompliance constituting a separate violation. (Ord. BL2000-500 § 2, 2000)

10.70.030 Delivery to board of health.

Dead animals removed by the department of public works pursuant to this ordinance shall be delivered by the department to the board of health's animal control facility for incineration or disposal by other appropriate means. Disposal shall be the responsibility of the board of health. (Ord. BL2000-500 § 3, 2000)

10.70.040 Joint authority.

The director of public works and the director of health acting jointly shall have authority, subject to the approval of the mayor, to implement this chapter by appropriate regulations. (Ord. BL2000-500 § 4, 2000)

Division II. Urban Services District

Chapter 10.72

HOSPITALS AND PHYSICIANS

Sections:

10.72.010 Police report required when.

10.72.010 Police report required when.

Every healthcare provider who shall render medical or surgical service or be called upon to render service or who attends or treats a case of bullet wound, gunshot wound, powder burn or any other injury arising from or caused by the discharge of a gun, pistol or other firearm or stab or cut, wound or any other traumatic injury inflicted by any other dangerous instrumentality, or, whenever such case is treated in a hospital, sanitarium or other institution, the manager, superintendent or other person in charge shall report such case at once to the chief of detectives at police headquarters, giving the name, address, description and any other information with regard to such person and occurrence. (Ord. BL2023-2125 § 6, 2023; prior code § 21-2-2)

Chapter 10.76

RESERVED*

*Editor's note—Ord. BL2012-261, § 12, adopted Oct. 16, 2012, repealed Ch. 10.76, §§ 10.76.010—10.76.200, which pertained to nursing, convalescent and old age homes and derived from prior Code §§ 28-2-1—28-2-20.

Chapter 10.80

FIRE PROTECTION AND FIREFIGHTING EQUIPMENT

Sections:

10.80.010 **Additional functions and services to include fire protection.**

10.80.020 **Damaging or removing firefighting equipment prohibited.**

10.80.010 Additional functions and services to include fire protection.

The additional functions of the metropolitan government to be performed, and the additional governmental services to be rendered within the urban services district, shall include additional fire protection. (Prior code § 16-2-2)

10.80.020 Damaging or removing firefighting equipment prohibited.

No person shall wilfully or carelessly break, injure, destroy or carry away any fire engine or any of the apparatus or implements belonging thereto, or commonly used by a fire company in preventing or extinguishing fires, or in saving property at the time of fire. Every person aiding or abetting in such offense shall be guilty of a like offense. (Prior code § 16-2-1)

Division III. Neighborhood Revitalization

Chapter 10.86

VACANT PROPERTY REVIEW COMMISSION

Sections:

10.86.010	**Findings and purpose.**
10.86.020	**Definitions.**
10.86.030	**Vacant property review commission.**
10.86.040	**Duties.**
10.86.050	**Eminent domain—Required findings.**
10.86.060	**Municipal officers and employees—Limited financial interests—Nondisclosure is misconduct.**

10.86.010 Findings and purpose.

The metropolitan council does declare that there exists in the area of the Metropolitan Government of Nashville and Davidson County blighted and deteriorated properties and that there is need within metropolitan government for the exercise of powers, functions and duties conferred by Tennessee Code Annotated 13-21-201 et seq. that deal with neighborhood revitalization. (Ord. BL2000-498 §1 (part), 2001; Ord. 97-780 § 1 (part), 1997)

10.86.020 Definitions.

All definition or terms, whenever used or referred to in this chapter shall have the meanings as defined in TCA 13-21-202 unless a different meaning clearly appears from the context. (Ord. 97-780 § 1 (part), 1997)

10.86.030 Vacant property review commission.

The board of commissioners of the metropolitan development and housing agency (MDHA) shall serve as the vacant property review commission and shall certify properties as blighted or deteriorated to the metropolitan council. (Ord. 97-780 § 1 (part), 1997)

10.86.040 Duties.

A. The vacant property review commission may certify to the metropolitan council properties as blighted or deteriorated after the commission has determined that:

1. The owner of the property or designated agent has been sent an order by the metropolitan codes department to eliminate the conditions that are in violation of metropolitan codes or ordinances;

2. The property is vacant;

3. The property is blighted or deteriorated;

4. The vacant property review commission has notified the property owner or designated agent that the property has been determined to be blighted or deteriorated and the time period for correction of such condition has expired and the property owner or agent has failed to comply with the notice; and

5. The metropolitan planning commission has determined that the reuse of the property for residential, commercial, industrial and related use is in keeping with the comprehensive plan.

B. The findings required by subsection A of this section shall be in writing and included in the report to the metropolitan council.

C. The vacant property review commission shall notify the owner of the property or a designated agent that a determination of blight or deterioration has been made and that failure to eliminate the conditions causing the blight shall render the property subject to condemnation by the municipality under this part. Notice shall be mailed to the owner or designated agent by certified mail, return receipt requested. However, if the address of the owner or designated agent is unknown and cannot be ascertained by the commission in the exercise of reasonable diligence, copies of the notice shall be posted in a conspicuous place on the property affected. The written notice sent to the owner or the owner's agent shall describe the conditions that render the property blighted and deteriorated, and shall demand abatement of the conditions within ninety days of the receipt of such notice.

D. An extension of the ninety-day time period may be granted by the vacant property review commission if the owner or designated agent demonstrates that such period is insufficient to correct the conditions cited in the notice. (Ord. BL2000-498 § 1 (part), 2001)

10.86.050 Eminent domain—Required findings.

The metropolitan council may, by resolution, institute eminent domain proceedings pursuant to Tennessee Code Annotated, Title 29, Chapters 16 and 17 (T.C.A. §§ 29-16-101 et seq. and 29-17-101 et seq.), or authorize MDHA to institute eminent domain proceedings pursuant to Tennessee Code Annotated, Title 29, Chapters 16 and 17 (T.C.A. §§ 29-16-101 et seq. and 29-17-101 et seq.), against any property which has been certified as blighted or deteriorated by vacant property review commission if it finds that:

A. Such property has deteriorated to such an extent as to constitute a serious and growing menace to the public health, safety and welfare;

B. Such property is likely to continue to deteriorate unless corrected;

C. The continued deterioration of such property may contribute to the blighting or deterioration of the area immediately surrounding the property; and

D. The owner of such property has failed to correct the deterioration of the property. (Ord. BL2000-498 § 1 (part), 2001)

10.86.060 Municipal officers and employees— Limited financial interests— Nondisclosure is misconduct.

No officer or employee of the metropolitan government, or of the vacant property review commission, who in the course of such officer's or employee's duties is required to participate in the determination of property blight or deterioration or of the issuance of notices on code violations which may lead to a determination of blight or deterioration, shall acquire any personal interest in any property declared to be blighted or deteriorated. If any such officer or employees owns or has financial interest, direct or indirect, in any property certified to be blighted or deteriorated, the officer or employee shall immediately disclose, in writing, such interest to the vacant property review commission and to the metropolitan council, and such disclosure shall be entered in the minutes of the commission and of the metropolitan council. No payment shall be made to any officer or employee for any property or interest therein acquired by the MDHA or the metropolitan government unless the amount of such payment is fixed by court order in eminent domain proceedings, or unless payment is unanimously approved by the legislative body. (Ord. 97-780 § 1 (part), 1997)

Title 11

PUBLIC PEACE, MORALS AND WELFARE

Chapters:

Division I. General Regulations

11.04 Offenses By or Against Public Officers and Government
11.08 Offenses Against the Person
11.12 Offenses Against Public Peace
11.16 Offenses Against Public Decency
11.20 Fair Employment and Housing Practices
11.22 Residential Landlord and Tenant Regulations
11.24 Offenses Against Property
11.26 Graffiti
11.28 Offenses By or Against Minors
11.32 Miscellaneous Offenses

Division II. Urban Services District

11.36 Firearms and Other Weapons

Division I. General Regulations

Chapter 11.04

OFFENSES BY OR AGAINST PUBLIC OFFICERS AND GOVERNMENT

Sections:

11.04.010	**Aiding police officers.**
11.04.020	**Resisting or interfering with police.**
11.04.030	**Attempting to escape pursuing officer.**
11.04.040	**Aiding escape of persons in custody.**
11.04.050	**Rescuing persons in custody.**
11.04.060	**Impersonating a police officer.**
11.04.070	**Interfering with alarm or communication systems.**
11.04.080	**Giving false information—False alarms.**
11.04.090	**False 911 calls.**
11.04.100	**Imitating sirens prohibited.**
11.04.110	**High frequency police radio receiving set—Defined.**
11.04.120	**Police radio—Permit required.**
11.04.130	**Police radio—Application—Annual fee.**
11.04.140	**Police radio permits—Not transferable.**
11.04.150	**Answering police radio calls prohibited.**

11.04.010 Aiding police officers.

It shall be the duty of all persons, when called upon by any police officer or any other member of the police department, to promptly aid and assist such officer or member in the discharge of his duties. (Prior code § 34-1-4)

11.04.020 Resisting or interfering with police.

It is unlawful for any person to resist any police officer, any member of the police department or any person duly empowered with police authority, while in the discharge or apparent discharge of his duty, or in any way to interfere with or hinder him in the discharge or apparent discharge of his duty. (Prior code § 34-1-1)

11.04.030 Attempting to escape pursuing officer.

No person shall wilfully fail or refuse to stop, or otherwise flee or attempt to elude a pursuing police officer after being given a lawful order to stop; provided, that the person has reason to believe that the pursuing individual is a police officer; provided, that the police officer's order to stop shall only be considered lawful if the police officer has probable cause to arrest the person, or reasonable suspicion to stop the person for investigation. (Prior code § 34-1-1.1)

11.04.040 Aiding escape of persons in custody.

It is unlawful for any person to offer or endeavor to assist any person in the custody of a police officer, a member of the police department or a person duly empowered with police authority to escape or to attempt to escape from such custody. (Prior code § 34-1-2)

11.04.050 Rescuing persons in custody.

It is unlawful for any person to rescue or to attempt to rescue any person in the custody of a police officer, a member of the police department or a person duly empowered with police authority. (Prior code § 34-1-3)

11.04.060 Impersonating a police officer.

A. It is unlawful for any person falsely to assume to be a police officer or, without authority or right, to assume to exercise police powers.

B. Any person, not an officer, wearing a uniform, badge or insignia similar to that worn by any metropolitan, city, county or state police, shall be prima facie guilty of a violation of this section. (Prior code § 29-1-31)

11.04.070 Interfering with alarm or communication systems.

It is unlawful to interfere with the alarm boxes of the police or fire departments, or with the telephones, telephone or telegraph wires or signal system or apparatus of either of such departments. (Prior code § 29-1-1)

11.04.080 Giving false information—False alarms.

A. It is unlawful for any person knowingly to make to the metropolitan police department any false, misleading or unfounded report, or knowingly to offer any false, misleading or unfounded information of any type whatsoever, for the purpose of interfering with the operation of the metropolitan police department or with the intention of misleading any police officer.

B. It is further unlawful for any person to knowingly activate any electronic device or burglar alarm which falsely indicates the commission of a felony. (Prior code § 29-1-21.1)

11.04.090 False 911 calls.

A. It is unlawful for any person to call the E-911 system of the metropolitan government indicating an emergency when the person knows or should have known there was not an emergency.

B. Any person convicted of violating this section shall be subject to the penalties of Section 1.01.030 of the metropolitan code. (Ord. 95-1329 § 2 (part), 1995; Ord. 89-1029 §§ 1, 2, 1989)

11.04.100 Imitating sirens prohibited.

It is unlawful for any person to use a gong, bell, siren or any other device making a noise similar to that used by the fire engines and police vehicles, which is intended as a warning to the public to give way to the passage of such fire engines or police vehicles in the performance of public duty. (Ord. 90-1339 § 1 (29-5), 1990; prior code § 29-1-23)

11.04.110 High frequency police radio receiving set—Defined.

A high frequency police radio receiving set shall be defined as any radio receiving set capable of receiving any message sent out by any police radio station. (Prior code § 34-2-1)

11.04.120 Police radio—Permit required.

It is unlawful for any person to equip or operate any motor vehicle with a high frequency police radio receiving set unless such motor vehicle is being used by the federal, state or metropolitan government or a peace officer, or unless a permit for the use of the same shall have been granted as provided by this chapter. (Ord. 90-1339 § 1 (34-1), 1990; prior code § 34-2-2)

11.04.130 Police radio—Application—Annual fee.

A. Any person desiring a permit from the mayor to operate a high frequency police radio receiving set in a motor vehicle shall file the application with the mayor in writing, stating the name of the applicant, the license number, engine number, model and make of the motor vehicle in which it is desired to install such set and shall furnish a photograph of the applicant and his fingerprints. The application shall also state the reason why it is desired to install such set.

B. If the mayor finds that the application shows a need for the set, that the set will be used for a lawful purpose and that the public interest will be served by a granting of the application, he shall issue a permit for installation and use of the set upon payment by the applicant for a license fee of one hundred dollars per year. An application shall be filed and a new permit shall be secured for each year a high frequency police radio receiving set is used. (Ord. 90-1339 § 1 (34-2), 1990; prior code § 34-2-3)

11.04.140 Police radio permits—Not transferable.

Any permit issued under the provisions of Section 11.04.130 shall not be transferable to any other person. A high frequency police radio receiving set authorized to be installed and used by any such permit shall not be placed in any motor vehicle other than the one described in the application for the permit without first obtaining a permit from the mayor for the removal of the set to the other motor vehicle. No fee shall be charged for such removal permit. In case of a change in license number of any motor vehicle in which a high frequency police radio receiving set has been permitted under this chapter, the owner of the vehicle shall notify the mayor of such change within five days after the change is made. (Prior code § 34-2-4)

11.04.150 Answering police radio calls prohibited.

It is unlawful for the operator of any motor vehicle, other than metropolitan government officers and police and fire department officers in the line of duty, to follow up and answer police radio calls or in any way interfere with police officers answering such radio police calls. (Prior code § 34-2-5)

Chapter 11.08

OFFENSES AGAINST THE PERSON

Sections:

11.08.010 Assault.

11.08.010 Assault.

A person commits assault who:

A. Intentionally, knowingly or recklessly causes bodily injury to another; or

B. Intentionally or knowingly causes another to reasonably fear imminent bodily injury; or

C. Intentionally or knowingly causes physical contact with another and knows the other will regard the contact as extremely offensive or provocative. (Ord. 90-1339 § 1 (29-1), 1990; prior code § 29-1-2)

Chapter 11.12

OFFENSES AGAINST PUBLIC PEACE

Sections:

11.12.010	**Disorderly conduct.**
11.12.020	**Assembling to commit unlawful acts.**
11.12.030	**False identification.**
11.12.040	**Disguises—Prohibited in public places—Exceptions.**
11.12.050	**Lewd or disruptive behavior on or around school grounds.**
11.12.060	**Disorderly house—Prostitution, gambling and rowdiness prohibited.**
11.12.070	**Excessive noise.**
11.12.080	**Discharging weapons.**
11.12.090	**Aggressive panhandling.**
11.12.100	**Definitions.**
11.12.110	**Prohibited conduct.**
11.12.120	**Penalty.**
11.12.130	**Severability.**

11.12.010 Disorderly conduct.

A. It is unlawful for any person within the area of the metropolitan government to violate any of the following subsections of this section:

1. Any person who shall act in a violent or tumultuous manner toward another whereby any person is placed in fear of safety of his life, limb or health; or

2. Any person who shall act in a violent or tumultuous manner toward another whereby the property of any person is placed in danger of being destroyed or damaged; or

3. Any person who shall disturb the peace of others by conduct or "fighting words" calculated to provoke violence or a violation of law;

4. Any person who shall cause, provoke or engage in any fight, brawl or riotous conduct so as to endanger the life, limb, health or property of another; or

5. Any person who shall frequent any public place with intent to obtain money from other persons by illegal and fraudulent schemes, tricks, artifices or devices; or

6. Any person who shall use "fighting words" directed towards any person who becomes outraged and thus creates a turmoil; or

7. Any person who shall, by acts of violence, interfere with another's pursuit of a lawful occupation; or

8. Any person who shall congregate with another or others in or on any public way so as to halt the flow of vehicular or pedestrian traffic and refuses to clear such public way when ordered by the city police or other lawful authority.

B. Any person who shall violate any subdivision of subsection A may be charged with the offense of "disorderly conduct," and on conviction thereof, may be found guilty of disorderly conduct. (Ord. 90-1339 § 1 (29-3), 1990; prior code § 29-1-15)

11.12.020 Assembling to commit unlawful acts.

It is unlawful for any two or more persons to assemble together in the area of the metropolitan government with an intent to do an unlawful act; or, being assembled, mutually to agree, or act in concert, to do an unlawful act with force or violence against the property of the metropolitan government, or the person or property of another, or against the peace and to the terror of others; or to make any move or preparation therefor; or, being present at such meeting or assembly, to fail to endeavor to prevent the commission of or perpetration of such unlawful act. (Prior code § 29-1-3)

11.12.030 False identification.

It is unlawful for any person in the area of the metropolitan government to offer, use or attempt to offer or use any means, manner, type or kind of paper, document, card, license or any other evidence of the identification of such person for the purpose of making sales or purchases of commodities, cashing checks, making other monetary transactions, to gain admission to any place or for any other purpose whatsoever, where such means, manner, type or kind of identification offered or used or which is attempted to be offered or used is false, fraudulent or incorrect in any manner or way or which misrepresents such person so offering or using the same or who attempts to offer or use the same, or which does not belong to such person, or which is altered, forged, defaced or changed in any respect, except such changes as are required or authorized by law. (Prior code § 29-1-22)

11.12.040 Disguises—Prohibited in public places—Exceptions.

A. For the purposes of this section, the following words and phrases shall have the meanings respectively ascribed to them by this subsection:

1. "Mask" means any mask, device or hood whereby any portion of the face is so hidden or covered as to conceal the identity of the wearer.

2. "Public place" means all walks, alleys, streets, boulevards, avenues, lanes, roads, highways or other ways or thoroughfares dedicated to public use or owned or maintained by public authority; all grounds and buildings owned, leased by, operated or maintained by public authority; all buildings owned, leased or operated for the use of organizations enjoying all tax-exempt privileges as a charitable use.

B. No person, while masked, shall be or appear on or in any public place in the metropolitan government area.

C. The following persons are exempted from the provisions of this section:

1. All children under the age of seventeen;

2. All workers while engaged in work wherein a covering is necessary for physical safety and protection against occupational hazards or because of the nature of the occupation or trade;

3. Persons while wearing traditional holiday costumes;

4. Persons while engaged in theatrical productions or masquerade balls;

5. Persons wearing gas masks in civil defense drills and exercises or emergencies;

6. Persons wearing a mask based on a sincerely held religious belief or practice;

7. Persons wearing a mask covering the nose and mouth that is intended for a legitimate medical purpose, including but not limited to, lowering the risk of transmission of respiratory illness pathogens. (Ord. BL2024-510 § 1, 2024; prior code § 29-1-38)

11.12.050 Lewd or disruptive behavior on or around school grounds.

It is unlawful for any person to loiter, idle, wander, stroll or play in, about or on any public, private or parochial school, college or seminary grounds or buildings, either on foot or in or on any vehicle, without having some lawful business therein or thereabout or in connection with such school or the employees thereof, or for any person to:

A. Annoy, disturb or otherwise prevent the orderly conduct of classes and activities of any such school; or

B. Annoy, disturb, assault or molest any student or employee of any such school, college or seminary while in any such school building or on any school grounds; or

C. Conduct himself in a lewd, wanton or lascivious manner in speech or behavior in or about any such school building or school grounds; or

D. Park or move a vehicle in the immediate vicinity of or on the grounds of any such school, college or seminary for the purpose of annoying or molesting the students or employees thereof, or in an effort to induce, entice or invite students into such vehicles for immoral purposes. (Prior code § 29-1-56)

11.12.060 Disorderly house—Prostitution, gambling and rowdiness prohibited.

A. No person who manages or controls any building, room or enclosure, either as its owner, lessee, agent or employee shall allow or permit prostitution, drunkenness, unlawful sale of alcoholic beverages, gambling, the sale, exhibition or possession of any obscene material or any obscene conduct or entertainment, quarrelling, fighting, rowdiness or loud noise sufficient to constitute a breach of the peace.

B. No person who manages or controls any building, room or enclosure, either as an owner, lessee, agent or employee shall knowingly rent, lease or make available for use, with or without compensation, any building, room or enclosure to any tenant or occupant who unlawfully manufactures, delivers, sells, stores, gives away or uses any regulated legend drug, narcotic, or other controlled substance as defined in Tennessee Code Annotated Section 39-17-402 and Tennessee Code Annotated Section 53-10-101.

1. A person who manages or controls any building, room or enclosure shall have knowingly rented, leased or made available for use, with or without compensation, such building, room or enclosure, to a tenant or occupant who unlawfully manufactures, delivers, sells, stores, gives away or uses a regulated legend drug, narcotic, or other controlled substance if, after receiving written notice from the metropolitan department of police that the occupant or tenant has been engaged in such illegal drug activity, he fails to evict the tenant or occupant from the building, room or enclosure.

2. Upon learning of suspected illegal drug activity involving a tenant or occupant of a building, room or enclosure, the metropolitan department of police shall determine whether such activity is in fact taking place. Once the metropolitan police department determines that a tenant or occupant is in fact manufacturing, delivering, selling, storing, giving away or using regulated legend drugs, narcotics, or other controlled substances and that enforcement of this subsection would not hinder further criminal prosecution, the metropolitan police department shall serve a written notice on the person(s) who manages or controls the property, informing him of the investigation and his responsibility to prohibit illegal drug activity on the property.

3. If requested, the metropolitan police department shall provide the person(s) managing or controlling the property with evidence that his tenant or occupant is illegally manufacturing, delivering, selling, storing, giving

away or using regulated legend drugs, narcotics, or other controlled substances before requiring him to evict the tenant or occupant.

4. The metropolitan police department shall serve the notice on the person who manages or controls the building, room or enclosure that one of his tenants or occupants is engaged in such illegal drug activity by a means of service authorized by Rule 4.04 of the Tennessee Rules of Civil Procedure for service of process.

5. No person shall be charged with a violation of this subsection if such person:

a. Instituted eviction proceedings within thirty days of the receipt of the notice of illegal activities of the tenant; and

b. Has completed the eviction proceedings within forty-five days of commencement of the proceedings; or

c. Cannot complete eviction proceedings within forty-five days by reason of a court-ordered delay in such proceedings. (Ord. BL2000-264 § 1, 2000; Amdt. 1 to Ord. 96-302, 5/21/96; Ord. 96-302 § 2, 1996; Ord. 90-1339 § 1 (29-4), 1990; prior code § 29-1-16)

11.12.070 Excessive noise.

Excessive noise is governed by the provisions of Chapter 9.20 of this Code. (Amdt. 1 to Ord. BL2019-1631 § 3, 2019; Ord. BL2019-1631 §§ 1, 3, 2019; Amdt. 1 to Ord. BL2019-1473 § 1, 2019; Ord. BL2019-1473 § 1, 2019; Ord. BL2013-604 § 1, 2014; Ord. BL2011-65 § 1, 2012; Ord. BL2009-587 § 2, 2010; Ord. BL2008-306 § 2, 2009; Amdt. 1 to Ord. BL2008-259 § 2, 2008; Ord. BL2008-259 §§ 1, 2, 2008; Amdt. 1 to Ord. BL2006-1138 § 1, 2006; Ord. BL2006-1138 § 1, 2006; Ord. 2002-1061 § 1, 2002; Ord. 2001-772 § 1, 2001; Amdts. 1, 2 to Ord. BL2000-378 §§ 1, 2, 2000; Amdt. 1 to Ord. 93-724, 8/3/93; Ord. 93-724 § 1, 1993; Ord. 88-508 § 1, 1988; prior code § 29-1-54)

11.12.080 Discharging weapons.

A. It is unlawful for any person to discharge or fire any firearm within the urban services district of the metropolitan government at any time, and within the general services district of the metropolitan government during the nighttime.

For the purposes of this section, the word "nighttime" means that period of time beginning thirty minutes after dusk and ending thirty minutes prior to sunrise.

B. It shall further be unlawful for any person to fire or discharge any air gun or air pistol, spring gun or spring pistol, or other device or firearm which is calculated or intended to propel or project a bullet, pellet, air or similar projectile, whether propelled by spring, compressed air or gases, explosive or other force-producing means, within the urban services district of the metropolitan government.

C. Notwithstanding any other provisions of this section, nothing in this section is intended to prohibit the discharge or firing of any firearms by anyone:

1. While in the lawful performance of duty as an officer of the law; or

2. Within a legally established shooting range or shooting gallery where precautions have been taken to insure the protection of human life and property; or

3. Lawfully engaged in hunting, as permitted by the state, upon any property located within the urban services district of the metropolitan government; or

4. Legally defending person or property. (Ord. 99-1775 § 1, 1999; Amdt. 1 to Ord. 96-295, 6/4/96; Ord. 96-295 § 1, 1996)

11.12.090 Aggressive panhandling.

A. Definitions.

1. "Panhandling" means any solicitation made in person upon any street, alley, sidewalk, public place or park requesting an immediate donation of money or other thing of value for oneself or another person or entity. The sale of an item for an amount far exceeding its value, under circumstances in which a reasonable person would understand that the purchase is, in substance, a donation, shall be considered panhandling for the purpose of this section. Panhandling shall not include the act of passively standing or sitting, performing music, or singing with a sign or other indication that a donation is being sought but without any vocal request other than a response to an inquiry by another person.

2. "Aggressive panhandling" means:

a. To approach or speak to a person in such a manner as would cause a reasonable person to believe that the person is being threatened with:

(1) Imminent bodily injury; or

(2) The commission of a criminal act upon the person or another person, or upon property in the person's immediate possession;

b. To persist in panhandling after the person solicited has given a negative response;

c. To block, either individually or as part of a group of persons, the passage of a solicited person;

d. To touch a solicited person without the person's consent;

e. To render any service to a motor vehicle, including but not limited to any cleaning, washing, protecting, guarding or repairing of said vehicle or any portion thereof, without the prior consent of the owner, operator or occupant of such vehicle, and thereafter asking, begging or soliciting alms or payment for the performance

of such service, regardless of whether such vehicle is stopped, standing or parked on a public street or upon other public or private property; or

f. To engage in conduct that would reasonably be construed as intended to intimidate, compel or force a solicited person to make a donation.

B. It shall be unlawful for any person to engage in an act of panhandling when either the panhandler or the person being solicited is located in, on, or at any of the following locations:

1. Any bus stop;

2. Any sidewalk cafe;

3. Any area within twenty-five feet (in any direction) of an automatic teller machine (ATM) or entrance to a bank;

4. Any daycare or community education facility, as defined by Section 17.04.060 of the Metropolitan Code;

5. Within ten feet of a point of entry to or exit from any building open to the public, including commercial establishments.

C. It shall be unlawful to engage in the act of panhandling on any day after sunset or before sunrise.

D. It shall be unlawful for any person to engage in an act of aggressive panhandling. (Amdt. 1 to Ord. BL2007-66 § 1, 2008; Ord. BL2007-66 § 1, 2008)

11.12.100 Definitions.

Whenever used in this section, the following words and phrases shall have the meanings indicated, unless the context or subject matter otherwise requires:

A. "Interfere with" shall mean to stop or to restrict a person's freedom of movement, or to stop, obstruct, or prevent, through deceptive means or otherwise.

B. "Person" shall mean an individual, corporation, non-for-profit organization, partnership, association, group, or any other entity.

C. "Premises of a public facility" shall include the driveway, entrance, entryway, or exit of the public facility, the building in which such facility is located, and any parking lot in which the facility has an ownership or leasehold interest.

D. "Public parking lot serving a public facility" shall mean any public parking lot that serves a public facility.

E. "Public facility" shall mean any building, structure, or place, or any portion thereof, owned and operated by a public entity. (Ord. BL2024-511 § 1, 2024)

11.12.110 Prohibited conduct.

It shall be unlawful for any person to do the following:

A. Knowingly physically obstruct or block another person from entering into or exiting from the premises of a public facility, or a public parking lot; or

B. By force or threat of force, or by physically obstructing or blocking, knowingly injure, or interfere with, or attempt to injure or interfere with, another person in order to discourage such person or any other person or persons from entering or exiting a public facility. (Ord. BL2024-511 § 1, 2024)

11.12.120 Penalty.

Any person violating any of these provisions shall be fined not less than fifty dollars. Each violation of this section shall be deemed a separate offense. (Ord. BL2024-511 § 1, 2024)

11.12.130 Severability.

The provisions of this chapter are hereby declared to be severable; and, if any of its sections, provisions, exceptions, sentences, clauses, phrases, or parts be unconstitutional or void, the remainder of this Act shall continue in full force and effect, it being the legislative intent, now hereby declared, that this Act would be passed, even if such unconstitutional or void matter had not been included therein. (Ord. BL2024-511 § 1, 2024)

Chapter 11.16

OFFENSES AGAINST PUBLIC DECENCY

Sections:

11.16.010	**Peeping or spying.**
11.16.020	**Indecent exposure.**
11.16.030	**Prostitution.**
11.16.040	**Lewd conduct in commercial establishments.**
11.16.050	**Controlled substances—Possession of paraphernalia prohibited—Exceptions.**
11.16.060	**Drug related activity—Termination of public housing tenancy.**
11.16.070	**Debtors' names—Use in public announcements prohibited.**
11.16.080	**Spitting in public conveyances.**

11.16.010 Peeping or spying.

It is unlawful for any person in the day or night to prowl or loiter about any dwelling or business house, outhouse or other building for the purpose of spying or peeping therein. (Prior code § 29-1-47)

11.16.020 Indecent exposure.

No person shall openly, lewdly and obscenely expose his person in any street or in view thereof, or in any other place of public resort. (Prior code § 29-1-33)

11.16.030 Prostitution.

A. For the purposes of this section, the following words and phrases shall mean:

1. "Prostitution" means the offering or receiving of the body for sexual intercourse or other sexual activity for hire.

2. "Sexual activity" means any sexual relations including homosexual relations.

B. It is unlawful for any person to:

1. Commit or offer or agree to commit an act of prostitution;

2. Secure or offer to secure another for the purpose of committing an act of prostitution;

3. Loiter in a public place for the purpose of being hired to engage in prostitution or any sexual activity;

4. Transport knowingly any person to any place for the purpose of committing an act of prostitution;

5. Receive or offer or agree to receive knowingly any person into any place or building for the purpose of performing an act of prostitution, or permit knowingly any person to remain in any place or building for any such purpose;

6. Direct or offer or agree to direct any person to any place or building for the purpose of committing an act of prostitution;

7. In any manner aid, abet, suffer, permit or participate in the doing of any of the acts prohibited by this section. (Amdt. 1 to Ord. 90-1230, 6/19/90; Ord. 90-1230 §§ 1, 2, 1990)

11.16.040 Lewd conduct in commercial establishments.

A. It is unlawful for any person in any commercial establishment knowingly to commit the following acts:

1. To expose to public view that portion of the breast which is defined to be the areola, the pubic hair, the cleft of the buttocks, or the genitals, when such exposure is patently offensive within contemporary community standards, has no serious scientific, literary, political or artistic merit, and such conduct appeals to the prurient interest of the average person; or

2. To perform acts of sexual intercourse, masturbation, sodomy, flagellation, or the fondling of the breasts, buttocks or genitals, when such acts are patently offensive within contemporary community standards, have no serious scientific, literary, political or artistic merit, and such conduct appeals to the prurient interest of the average person.

B. It is unlawful for the owner of a commercial establishment, or his agent or employee, knowingly to employ any person or to permit any person in any commercial establishment:

1. To expose to public view that portion of the breast which is defined to be the areola, the pubic hair, the cleft of the buttocks, or the genitals, when such exposure is patently offensive within contemporary community standards, has no serious scientific, literary, political or artistic merit, and such conduct is calculated to appeal to the prurient interest of the viewing audience; or

2. To perform acts of sexual intercourse, masturbation, sodomy, flagellation, or the fondling of the breasts, buttocks or genitals, when such acts are patently offensive within contemporary community standards, have no serious scientific, literary, political or artistic merit, and such conduct is calculated to appeal to the prurient interest of the viewing audience.

C. Definitions.

1. "Areola" means that portion of the breast to include the nipple and the red pigmented area surrounding it.

2. "Commercial establishment" means any club, theater, hotel, motel, tavern, restaurant, or other place where live entertainment is performed before paying customers.

3. "Patently offensive" means that which goes substantially beyond customary levels of explicitness in the portrayal of sexual conduct.

4. "Prurient interest" means a shameful or morbid interest in sex.

D. Nothing contained in this section shall be construed to apply to exhibition, presentation, or performance of any play, ballet, drama, tableau, production or motion picture in any theater, concert hall, museum of fine arts, school, institution of higher learning, or other similar establishment which is primarily devoted to such exhibitions, presentations, shows or performances as a form of expression of opinion, communication, speech, ideas, information, art or drama as differentiated from commercial business promotion or exploitation of the sexual nature of the human body for the purposes of advancing the economic welfare of a commercial enterprise. (Prior code § 29-1-34)

11.16.050 Controlled substances—Possession of paraphernalia prohibited—Exceptions.

A. It is unlawful for any person to, at any time, knowingly have or possess a hypodermic needle, syringe or any other instrument or implement adapted for the use of any controlled substance and having on it any quantity, including trace, of a controlled substance; provided, that the prohibitions contained in this section shall not apply to any possession authorized under Title 53 of the Tennessee Code Annotated, or to a practitioner or a person acting under his direction.

B. A "practitioner" means a physician, dentist, veterinarian, scientific investigator, or other person licensed, registered, or otherwise permitted to distribute, dispense, analyze, conduct research with respect to, or to administer a controlled substance in the course of professional practice or research in this state; or a pharmacy, hospital, or other institution licensed, registered, or otherwise permitted to distribute, dispense, conduct research with respect to, or administer a controlled substance in the course of professional practice or research in this state. (Prior code § 29-1-18)

11.16.060 Drug related activity—Termination of public housing tenancy.

A. For the purposes of this section the term "drug-related criminal activity" means the illegal manufacturing, sale, distribution, use or possession with intent to manufacture, sell, distribute or use of a controlled substance (as defined by the Tennessee Code Annotated).

B. It is unlawful for a public housing tenant or any member of the tenant's household or a guest or other person under the tenant's control to engage in any criminal activity including drug-related activity on or near public housing premises while the tenant is a tenant in public housing. Any such criminal activity shall be lawful cause for termination of tenancy by the metropolitan development and housing agency upon a determination of such activity by appropriate hearing which provides for due process. (Amdt. 2 to Ord. 90-1298, 10/2/90; Amdt. 1 to Ord. 90-1298, 8/7/90; Ord. 90-1298 § 1, 1990)

11.16.070 Debtors' names—Use in public announcements prohibited.

A. It is unlawful for any person to place on exhibit in a public place any advertisement or announcement offering to sell any claims, accounts or judgments against any person where the name of such person is there listed.

B. It is unlawful for the owner or occupant of any lot or building to permit his property to be placarded with any publicly exhibited sign or bulletin offering for sale any claim, account or judgment against any person where the name of such person is there listed. Each day such sign or notice is kept on exhibition shall constitute a separate offense. (Prior code § 29-1-14)

11.16.080 Spitting in public conveyances.

A. It is unlawful for any person to spit upon any part of a public conveyance.

B. [Reserved.] (Ord. BL2012-261 § 13, 2012; prior code § 29-1-57)

Chapter 11.20

FAIR EMPLOYMENT AND HOUSING PRACTICES

Sections:

11.20.010	**Purpose of chapter.**
11.20.020	**Definitions.**
11.20.030	**Discrimination prohibited—By employers.**
11.20.040	**Discrimination prohibited—By employment agencies.**
11.20.050	**Discrimination prohibited—By labor organizations.**
11.20.060	**Discrimination prohibited—Recruitment for training programs.**
11.20.070	**Discrimination prohibited—Employment advertisements.**
11.20.080	**Certain practices not considered discriminatory.**
11.20.090	**Seniority or merit privileges not considered discriminatory.**
11.20.100	**Human relations commission—Powers and duties.**
11.20.110	**Complaints—Filing—Investigation—Hearing.**
11.20.120	**Hearing—Issuance of citations and warrants.**
11.20.130	**Metropolitan government prohibited from discriminating.**

11.20.010 Purpose of chapter.

This chapter is enacted in order to secure for all individuals within the area of the metropolitan government freedom from discrimination because of race, color, religion, national origin, disability or sex in connection with employment and thereby protect their interest and personal dignity. (Amdt. 1 with Ord. 2003-1312 § 1, 2003; prior code § 14A-1-2)

11.20.020 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Disability" means, with respect to a person: (a) A physical or mental impairment which substantially limits one or more of such person's major life activities; (b) A record of having such impairment; or (c) Being regarded as having an impairment. "Disability" does not include the current illegal use of, or the addiction to, a controlled substance, or the current abuse of alcohol.

"Employee" means an individual employed by an employer.

"Employer" means a person who has twelve or more employees in each of twenty or more calendar weeks in the current or preceding calendar year and an agent of such a person.

"Employment agency" means a person regularly undertaking, with or without compensation, to procure employees for an employer or to procure for employees opportunities to work for an employer, and includes an agent of such person.

"Labor organization" means a labor organization and an agent of such an organization, including an organization of any kind, an agency or employee representation committee, group, association or plan so engaged in which employees participate and which exists for the purpose, in whole or in part, of dealing with employers concerning grievances, labor disputes, wages, rates of pay, hours or other terms or conditions of employment, and a conference, general committee, joint or system board or joint council so engaged which is subordinate as a national or international labor organization.

"Review panel" means a group of five members of the metropolitan human relations commission, to be appointed by the chairman of the commission. (Amdt. 1 with Ord. 2003-1312 §§ 1, 2, 2003; prior code § 14A-1-1)

11.20.030 Discrimination prohibited—By employers.

It is an unlawful practice for an employer:

A. To fail or refuse to hire, or to discharge, any individual, or otherwise to discriminate against an individual with respect to compensation, terms or conditions or privileges of employment, because of such individual's race, color, religion, national origin, disability or sex;

B. To limit, segregate or classify his employees in any way which would deprive or tend to deprive an individual of employment opportunities or otherwise adversely affect his status as an employee, because of such individual's race, color, religion, national origin or sex. (Amdt. 1 with Ord. 2003-1312 § 1, 2003; prior code § 14A-1-3)

11.20.040 Discrimination prohibited—By employment agencies.

It is an unlawful practice for an employment agency to fail or refuse to refer for employment, or otherwise to discriminate against, an individual because of his race, color, religion, national origin, disability or sex, or to classify or refer for employment an individual on the basis of his race, color, religion, national origin, disabil-

ity or sex. (Amdt. 1 with Ord. 2003-1312 § 1, 2003; prior code § 14A-1-4)

11.20.050 Discrimination prohibited—By labor organizations.

It is an unlawful practice for a labor organization:

A. To exclude or to expel from its membership, or otherwise to discriminate against, a member or applicant for membership because of his race, color, religion, national origin, disability or sex;

B. To limit, segregate or classify its membership, or classify or fail or refuse to refer for employment an individual, in any way which would deprive or tend to deprive an individual of employment opportunities or would limit such employment opportunities or otherwise adversely affect his status as an employee or as an applicant for employment, because of such individual's race, color, religion, national origin, disability or sex;

C. To cause or attempt to cause an employer to discriminate against an individual in violation of this section. (Amdt. 1 with Ord. 2003-1312 § 1, 2003; prior code § 14A-1-5)

11.20.060 Discrimination prohibited—Recruitment for training programs.

It is an unlawful practice for an employer, labor organization or joint labor-management committee controlling apprenticeship or other training or retraining, including on-the-job training programs, to discriminate against an individual because of his race, color, religion, national origin, disability or sex in recruitment, or admission to, or employment in, any program established to provide apprenticeship or other training. (Amdt. 1 with Ord. 2003-1312 § 1, 2003; prior code § 14A-1-6)

11.20.070 Discrimination prohibited—Employment advertisements.

It is an unlawful practice for an employer, labor organization or employment agency to print or publish or cause to be printed or published a notice or advertisement relating to employment by such an employer or membership in or any classification or referral for employment by the employment agency, indicating any preference, limitation, specification or discrimination, based on race, color, religion, national origin, disability or sex; except, that such a notice or advertisement may indicate a preference, limitation or specification based on religion, national origin, disability or sex when religion, national origin, disability or sex is a bona fide occupational qualification for employment. (Amdt. 1 with Ord. 2003-1312 § 1, 2003; prior code § 14A-1-7)

11.20.080 Certain practices not considered discriminatory.

Notwithstanding any other provisions of this chapter, it is not an unlawful practice for:

A. An employer to hire and employ employees, an employment agency to classify or refer for employment an individual, for a labor organization to classify its membership or to classify or refer for employment an individual, or for an employer, labor organization or joint labor-management committee controlling apprenticeship or other training or retraining programs to admit or employ an individual in any such program, on the basis of his religion, national origin or sex in those certain instances where religion or national origin is a bona fide occupational qualification reasonably necessary to the normal operation of that business or enterprise;

B. A religious corporation, association or society to employ an individual on the basis of his religion to perform work connected with the carrying on by such corporation, association or society of its religious activity;

C. A school, college, university or other educational institution to hire and employ employees of a particular religion if the school, college, university or other educational institution is in whole or substantial part, owned, supported, controlled or managed by a particular religion or by a particular religious corporation, association or society, or if the curriculum of the school, college, university or other educational institution is directed toward the propagation of a particular religion and the choice of employees is calculated by such organization to promote the religious principles for which it is established or maintained. (Prior code § 14A-1-8)

11.20.090 Seniority or merit privileges not considered discriminatory.

Notwithstanding any other provision of this chapter, it is not an unlawful practice for an employer to apply different standards of compensation, of different terms, conditions or privileges of employment pursuant to a bona fide seniority or merit system, or a system which measures earnings by quantity or quality of production or to employees who work in different locations; provided, that such differences shall not be the result of intentional discrimination because of race, color, religion, national origin, disability or sex. (Amdt. 1 with Ord. 2003-1312 § 1, 2003; prior code § 14A-1-9)

11.20.100 Human relations commission—Powers and duties.

In the enforcement of this chapter, the metropolitan human relations commission has the following powers and duties:

A. To meet and exercise its powers at any place within the metropolitan government area;

B. To have the services of attorneys, hearing examiners, clerks and other employees and agents who are metropolitan government employees, except in those cases in which the metropolitan government is a party, and in which case the human relations commission may seek the metropolitan council's approval to engage appropriate counsel;

C. After a complaint has been filed against an employer, to give written notice to the employer and other persons to appear as witnesses with pertinent records. Upon the failure to respond, the conciliation procedure herein may be continued, nevertheless, and, upon sufficient evidence and a finding of a violation of this chapter, the procedure described in Section 11.20.120 may be followed;

D. To file in a court of competent jurisdiction such cases as cannot be resolved by conference, conciliation or persuasion. (Prior code § 14A-1-10)

11.20.110 Complaints—Filing—Investigation—Hearing.

A. An individual claiming to be aggrieved by an unlawful practice or a member of the metropolitan human relations commission may file with the commission a written and sworn complaint stating that an unlawful practice has been committed, setting forth the facts upon which the complaint is based, and setting forth facts sufficient to enable the commission to identify the persons charged (hereinafter the "respondent"). The complaint must be filed within six months after the alleged unlawful practice occurs.

B. The commission shall make a prompt and full investigation of each complaint.

C. If it is determined that there is no probable cause to believe that the respondent has engaged in an unlawful practice, the commission shall issue an order dismissing the complaint.

D. If it is determined, after investigation, that there is probable cause to believe that the respondent has engaged in unlawful practice, the commission shall endeavor to eliminate the alleged unlawful practice by conference, conciliation and persuasion. The terms of a conciliation agreement reached with a respondent may require him to refrain from the commission of unlawful discriminatory practices in the future and make such further provisions as may be agreed upon between the commission or its staff and the respondent. Except for the terms of the conciliation agreement, neither the commission nor any officer, employee, agent or representative thereof shall make public, without the written consent of the complainant and the respondent, information concerning efforts in a particular case to eliminate an unlawful practice by conference, conciliation or persuasion, whether or not there is a determination of probable cause or a conciliation agreement.

E. In any case of failure to eliminate the alleged unlawful practice by means of conference, conciliation or persuasion, the commission shall direct the review panel to hold a private hearing to determine whether or not an unlawful practice has been committed. The review panel shall furnish to the respondent a statement of the charges made in the complaint and a notice of the time and the place of the hearing. The hearing shall be held not less than ten days after furnishing of the statement of charges. The respondent may file an answer, may appeal at the hearing in person or may be represented by an attorney, and shall have the right to examine or to cross-examine witnesses.

F. If the review panel determines that the respondent has not engaged in an unlawful practice, the panel shall report its findings to the metropolitan human relations commission, and the commission shall rule that the complaint is dismissed.

G. If the review panel determines that the respondent has engaged in an unlawful practice, the review panel shall report its findings to the metropolitan human relations commission and the commission, with a quorum present and by a majority vote of those present, may seek relief for the aggrieved person or persons under Section 11.20.120.

H. Testimony taken at the hearing shall be under oath and may be transcribed. The rules of evidence prevailing in courts shall be substantially observed. After the hearing, in its discretion, the commission, upon notice to all parties with the opportunity to be present, may take further evidence or hear argument. (Prior code § 14A-1-11)

11.20.120 Hearing—Issuance of citations and warrants.

A. In the event the respondent fails to make available to the metropolitan human relations commission or its staff or to the review panel, records, documents or testimony relevant to the complaint, and/or in the event the review panel and the metropolitan human relations commission cannot eliminate the alleged, unlawful practice by conference, conciliation and persuasion, the

commission shall cause to be issued a citation requiring the defendant to appear in the metropolitan court on a date set for a hearing.

B. The citation will be sent by certified mail to the principal place of business of the employer alleged to be violating any provision of this chapter, and such notice will be sufficient for the purposes hereof. The form of citation, with sufficient copies, shall be approved by the metropolitan legal department, and shall contain a warrant on one side of the citation form. If the defendant fails to appear on the date as cited, the metropolitan judge may sign and issue a warrant to be served upon the defendant, requiring him to appear before the judge of the metropolitan court for a hearing upon the warrant and for disposition thereof. (Prior code § 14A-1-12)

11.20.130 Metropolitan government prohibited from discriminating.

It is unlawful for the metropolitan government to fail or refuse to hire or promote, or to discharge any individual, because of such individual's race, religion, creed, gender, gender identity, sexual orientation, national origin, color, age, and/or disability. Nothing in this section shall be interpreted to give an employee a right to partner medical insurance or pension benefits. (Amdt. 1 to Ord. BL2009-502, § 1, 2009; Ord. BL2009-502 § 1, 2009)

Chapter 11.22

RESIDENTIAL LANDLORD AND TENANT REGULATIONS

Sections:

11.22.010	**Required notice for increases of residential rent.**
11.22.020	**Required notice for assignment of a residential lease.**
11.22.030	**Required notice for termination of non-renewal of a lease.**
11.22.035	**Required notice for termination of tenancy for purposes of eviction ("Norma Jean Upshaw Act").**
11.22.040	**Conflict with state law.**

11.22.010 Required notice for increases of residential rent.

In the absence of a written rental agreement that requires sixty days or more written notice of an increase in residential rent, a landlord must provide a minimum of ninety days' advance written notice of any increase in the amount of rent charged to a residential tenant.

Any proposed increase shall have no effect on any other term or condition of a written rental agreement. After proper notice has been given, any increase in rent may not become effective prior to the completion of the original lease term.

This provision shall not apply to any housing funded through any programs that are regulated by a division, department, agency, or branch of the federal, state, or metropolitan government.

This provision shall apply to all residential leases entered into on or after July 1, 2020. (Amdt. 1 to Ord. BL2020-149 § 1, 2020; Ord. BL2020-149 § 1, 2020)

11.22.020 Required notice for assignment of a residential lease.

A. If a landlord assigns its rights under a residential lease, the assignee shall within fourteen days after the assignment deliver written notice to the tenant stating: (1) the assignee's name; (2) the address, telephone number, and email address of the tenant's main point of contact, whether that be the assignee or the assignee's agent, if applicable; (3) the address to which any rent payments must be delivered; and (4) if applicable, notice to the best of the assignee's knowledge of any intended termination or non-renewal of the lease.

B. This section shall not apply when a written rental agreement addresses the notice required to be given to the tenant of an assignment of the lease by the landlord. This section will apply only to lease agreements entered into on or after April 1, 2021. (Amdt. 1 to Ord. BL2020-456 § 1, 2020; Ord. BL2020-456 § 1, 2020)

11.22.030 Required notice for termination of non-renewal of a lease.

A. In the absence of a written rental agreement that requires sixty days or more written notice of intent not to renew a lease, a landlord must provide to a tenant written notice of at least sixty days prior to the end of the lease of any intention not to renew the lease.

B. This section shall apply only to leases for a term of one year or greater. (Ord. BL2020-456 § 1, 2020)

11.22.035 Required notice for termination of tenancy for purposes of eviction ("Norma Jean Upshaw Act").

A. As used in this section:

a. "Facility" means a facility that:

i. Provides housing for older persons, as defined in 42 U.S.C. § 3607(b)(2)(C); and

ii. Receives federal financial assistance that subjects it to Section 504 of the federal Rehabilitation Act of 1973 (29 U.S.C. § 794);

b. "New property development" means:

i. Razing a facility to use the real property on which the facility is located for purposes other than to provide housing for older persons, as defined in 42 U.S.C. § 3607(b)(2)(C); or

ii. Renovating a facility in a manner that requires the tenants of the facility to vacate the facility in order to turn the facility into residential housing offered at a market rate; and

c. "Residential tenant" means a residential tenant who has a lease or other agreement to live in a facility and who is fifty-five years of age or older.

B. A landlord shall provide sixty days' notice of termination of tenancy for the purpose of eviction of a residential tenant of a facility if:

a. The tenant has paid the tenant's rent due and is not in arrears on rent payments; and

b. The termination and eviction are to allow for new property development.

C. This section does not abrogate a landlord's right to terminate a tenancy pursuant to other provisions in state law.

D. This section shall apply to agreements entered into, amended, or renewed on or after July 1, 2023. (Ord. BL2023-1886 § 1, 2023)

11.22.040 Conflict with state law.

To the extent any provision in this Title 11, Chapter 22 conflicts with a provision of state law, then state law shall prevail. (Ord. BL2020-456 § 1, 2020)

Chapter 11.24

OFFENSES AGAINST PROPERTY

Sections:

11.24.010 Certain state offenses declared municipal misdemeanors.
11.24.020 Library property—Unauthorized use—Defacement.
11.24.030 Defacing public or private property—Penalty.
11.24.040 Defacing buildings under construction.
11.24.050 Trespassing on enclosed property—Defacing enclosure.
11.24.060 Occupying premises without owner's permission—Defacing improvements.
11.24.070 Placing hazardous or offensive substances in public places.
11.24.080 Placing obstructions on public property for private benefit.
11.24.090 Reserved.
11.24.100 Exhausting steam into public sewer.
11.24.110 Prospecting on metropolitan government property.

11.24.010 Certain state offenses declared municipal misdemeanors.

A. The following state offenses are declared to be municipal misdemeanors, the definition of such offenses to be the same as those contained in the state statutes:

1. Worthless checks (Tennessee Code Annotated Section 39-14-121); and

2. Shoplifting or theft of goods held for sale, of value of five hundred dollars or less (Tennessee Code Annotated Section 39-14-103).

B. When any person is convicted of the commission of any of offenses listed in this section, he shall be punished as provided in Section 1.01.030, or, in the discretion of the metropolitan judge, may be bound over to the criminal court. (Ord. 95-1329 § 2 (part), 1995; Ord. 90-1339 § 1 (29-12), 1990; prior code § 29-1-58)

11.24.020 Library property—Unauthorized use—Defacement.

No person shall take from the public library any book or other periodical or paper, map or document belonging to such library, except in accordance with the rules and regulations thereof, or, having legally borrowed the same, fail to return the same in accordance with the regulations, or write upon or otherwise deface or injure in part or in whole any property belonging to such library. (Prior code § 29-1-35)

11.24.030 Defacing public or private property—Penalty.

A. It is unlawful for any person to:

1. Wilfully damage or deface personal or real property belonging to another person;

2. Damage or deface any public, real or personal property, including but not limited to traffic signs and signals and street markers.

B. In addition to the civil remedies available to persons or governments damaged in violation of this section, the metropolitan court is authorized to enforce this section by imposing a penalty, as provided in Section 1.01.030 and a fee or assessment not exceeding two hundred dollars.

C. The parents or legal guardians of children under the age of twenty-one shall be legally responsible for the conduct of children under their care and charge, and shall be obligated to pay any fine, fee or assessment imposed under this section. (Ord. 95-1329 § 2 (part), 1995; prior code § 29-1-51)

11.24.040 Defacing buildings under construction.

No person shall wantonly injure or deface any new build-in course of construction or any unoccupied building. (Prior code § 29-1-5)

11.24.050 Trespassing on enclosed property—Defacing enclosure.

A. "Enclosed real estate" means real estate that is actually enclosed by a wall or fence or otherwise surrounded by wire, rope or some obstruction however slight clearly evidencing an intent to keep off the same.

B. The owners of lots and parcels of enclosed real estate within the area of the metropolitan government may post the same against trespassers, by a sign or board with notice inscribed thereon to keep off the same, and it shall be unlawful for any person to go upon the real estate so posted without the permission of the owner of such premises.

C. It is unlawful for any person to cut or deface any wall or fence around the premises of any person. (Ord. 90-1339 § 1 (29-13), 1990; prior code § 29-1-63)

11.24.060 Occupying premises without owner's permission—Defacing improvements.

A. It is unlawful for any person to move into or occupy any house, room or apartment in the area of the metropolitan government without the consent of the owner or his authorized agent. Each day of such unlawful occupancy shall be regarded as a separate offense.

B. It is unlawful for any person to destroy, deface or injure any improvements on the property of any other person without the consent of the owner or his authorized agent. (Prior code § 29-1-64)

11.24.070 Placing hazardous or offensive substances in public places.

No person shall take, carry, expose or place in or upon any public place or public building any substance, animal or thing which is or is likely to become a public nuisance, or which shall imperil the life, health or safety of any person who is or may properly be in such public place or building, or which, through the giving off of odors or noises, shall be or become offensive or injuriously affect the comfort and service of persons using such public place or building. (Prior code § 29-1-53)

11.24.080 Placing obstructions on public property for private benefit.

It is unlawful to place or cause to be placed, in any manner, buildings, erections, depositories or other obstructions, with any sort of permanency, for private use, benefit or profit, upon any part or portion of the public grounds of the area of the metropolitan government without permission of the director of public property. (Prior code § 29-1-52)

11.24.090 Reserved.

Editor's note—Ord. BL2012-261, § 14, adopted Oct. 16, 2012, repealed § 11.24.090, which pertained to throwing stones and derived from prior Code § 29-1-61.

11.24.100 Exhausting steam into public sewer.

A. It is unlawful for any person using steam apparatus of any kind to exhaust steam into any sewer owned or controlled the metropolitan government.

B. It is declared to be a nuisance and prejudicial to public health to exhaust steam into any sewer, and any person who now has a steam connection exhausting into any sewer owned or controlled by the metropolitan government shall, within thirty days after written notice from the director of public works, sever and disconnect such connection.

C. On failure to do so, he shall be deemed guilty of a violation of this section. (Prior code § 29-1-59)

11.24.110 Prospecting on metropolitan government property.

A. Definitions. The following terms, when used in this section, shall have the meanings as ascribed herein:

"Artifacts" means all relics, specimens or objects of an historical, prehistorical, archaeological or anthropological nature which may be found above or below the surface of the earth, and which have scientific or historic value as objects of antiquity, as aboriginal relics, or as archaeological specimens.

"Historic site" means any location of historic or prehistoric human activity such as, but not restricted to, mounds, forts, earthworks, burial grounds, structures, villages, mines, caves, shipwrecks, and all locations which are or may be sources of paleontological remains.

"Prospect" means the use of a probe, metal detector, or any other device or tool to search, test, or excavate for artifacts or historic sites.

"Public property" means property that is owned or is under the control of the metropolitan government or any of its departments, agencies, boards, or commissions.

B. No individual shall be allowed to prospect on public property, including the public rights-of-way, without the express written permission of the metropolitan government department, agency, board, or commission having control over such public property. All artifacts found on public property shall immediately be turned over to the metropolitan historical commission.

C. Enforcement and penalties. Any person violating any of the provisions of this section shall be assessed a civil penalty in the amount of fifty dollars. Each incident or separate occurrence of an act that violates this section shall be deemed a separate offense. In addition to the penalties provided herein, persons that are not in conformity with these requirements shall be subject to appropriate injunctive relief by a court of competent jurisdiction. (Ord. BL2011-834 § 3, 2011)

Chapter 11.26

GRAFFITI

Sections:

11.26.010	**Definitions.**
11.26.020	**Graffiti prohibition.**
11.26.030	**Possession of graffiti implements by minors prohibited.**
11.26.040	**Possession of graffiti implements prohibited in designated public places.**
11.26.045	**Sale of graffiti implements to minors prohibited.**
11.26.050	**Parental civil liability.**
11.26.055	**Reward for information leading to arrest and conviction of violator.**
11.26.060	**Penalty.**
11.26.070	**Severability.**

11.26.010 Definitions.

For the purpose of the ordinance codified in this chapter, the words and phrases shall have the following meanings, unless otherwise clearly indicated by the context:

"Aerosol paint container" means any aerosol container which is adapted or made for the purpose of spraying paint or other substance capable of defacing property.

"Felt tip marker" means any indelible marker or similar implement with a tip which, at its broadest width, is greater than one-quarter of an inch, containing ink or other pigmented liquid which is not water soluble.

"Graffiti" means any inscription, word, figure, or design that is marked, etched, scratched, drawn, painted, pasted or otherwise affixed to or, on any surface, regardless of the nature of the material of that structural component, to the extent that same was not authorized in advance by the owners thereof.

"Graffiti implement" means an aerosol paint container, a felt tip marker, or a graffiti stick.

"Graffiti stick" means any device containing a solid form of paint, chalk, wax, epoxy, or other similar substance capable of being applied to a surface by pressure, and upon application, of leaving a mark at least one-quarter of an inch in width and not water-soluble. (Ord. BL2005-635 § 1, 2005; Ord. 94-1236 § 1, 1994)

11.26.020 Graffiti prohibition.

It shall be unlawful for any person to apply graffiti on any public or privately owned structures located on public or privately owned real property located within the area of the metropolitan government. (Ord. 94-1236 § 2, 1994)

11.26.030 Possession of graffiti implements by minors prohibited.

It shall be unlawful for any person under the age of eighteen years to have in his or her possession any graffiti implement while upon public property or upon private property without the consent of the owner of such private property whose consent is given in advance and whose consent shall be given as to the person's presence while in possession of a graffiti implement. The foregoing provision shall not apply to the possession of felt tip markers by minors attending, or traveling to or from a school at which the person is enrolled, if the person is participating in a class at said school which formally requires the possession of felt tip markers. The burden of proof in any prosecution for violation of this section shall be upon the minor student to establish the need to possess a felt tip marker. (Ord. 94-1236 § 3, 1994)

11.26.040 Possession of graffiti implements prohibited in designated public places.

It shall be unlawful for any person to have in his or her possession any graffiti implement while in or upon any public facility, park, playground, swimming pool, recreational facility, or other public building or within one hundred feet of an underpass, bridge abutment, storm drain, or similar types of infrastructure unless otherwise authorized by the metropolitan government. (Ord. 94-1236 § 4, 1994)

11.26.045 Sale of graffiti implements to minors prohibited.

No person or firm shall sell or cause to be sold to any person under the age of eighteen years, and no person under the age of eighteen years shall buy any graffiti implement as defined in Section 11.26.010. Evidence that a person, or his/her employee or agent demanded and was shown bona fide evidence of majority and acted upon such evidence in a transaction or sale shall be a defense to any violation of this section. For purposes of this section, "bona fide evidence of majority" means a document issued by a federal, state, county, or municipal government or agency thereof, including but not limited to, a motor vehicle operator's license, or registration certificate issued under the Federal Selective Service Act, a passport, or an identification card issued to a member of the armed forces which identifies an individual and provides proof of the age of such individual. (Ord. BL2004-259 § 1, 2005)

11.26.050 Parental civil liability.

Any parent or legal guardian who consents to, permits, or otherwise knowingly allows her or his child under the age of eighteen to possess a graffiti implement shall be personally liable for any and all costs to any person incurred in connection with the removal of graffiti caused by said child or by said graffiti implement. (Ord. 94-1236 § 5, 1994)

11.26.055 Reward for information leading to arrest and conviction of violator.

Any person who provides information that leads to the arrest and conviction of a person for violating the provisions of the Metropolitan Code concerning illegal dumping, littering or graffiti shall be paid a reward in an amount of not more than five hundred dollars. A committee composed of the chief of police, the director of finance and the district attorney general, or their designees, shall determine when and if such reward shall be made and further the amount of any such reward. In paying the award, the committee shall consider the amount collected from fines imposed for violations of these Metropolitan Code provisions. The police department shall establish and publicize a telephone reporting system with a dedicated telephone number that will permit anonymous telephone callers to report violations and enable such persons to claim the reward provided herein. (Ord. 96-526 §§ 1, 2, 1996; Ord. 95-1484 § 1, 1995)

11.26.060 Penalty.

All provisions of this chapter shall be governed by the penalties and procedures for general ordinance violations found in Section 1.01.030. (Ord. BL2010-793 § 7, 2010; Ord. 94-1236 § 6, 1994)

11.26.070 Severability.

Should any court of competent jurisdiction declare any section, clause, or provision of the ordinance codified in this chapter to be unconstitutional, such decision shall affect only such section, clause or provision so declared unconstitutional, and shall not affect any other section, clause, or provision of the ordinance. (Ord. 94-1236 § 7, 1994)

Chapter 11.28

OFFENSES BY OR AGAINST MINORS

Sections:

Article I. General Provisions

11.28.010 Minors contributing to the delinquency of others.
11.28.020 Adults contributing to the delinquency of minors.
11.28.030 Assault—Indecent exposure.
11.28.040 Improper advances—Offers to ride in vehicles.
11.28.050 Glue and related substances—Sale and use restrictions.
11.28.070 Abandoning refrigerators in accessible places.
11.28.080 Loitering during school hours.
11.28.120 Location of certain businesses restricted near places frequented by minors.
11.28.130 Admittance to certain movies not permitted—Penalty.
11.28.140 Indecent publications—Sale or exhibition in places frequented by minors.

Article II. Juvenile Curfew

11.28.200 Definitions.
11.28.210 Curfew for juveniles.
11.28.220 Defenses.
11.28.230 Parental responsibility.
11.28.240 Enforcement procedures.
11.28.250 Construction and severability.
11.28.260 Curfew—Continuing evaluation.
11.28.270 Curfew—Notice.

Article I. General Provisions

11.28.010 Minors contributing to the delinquency of others.

No child who has reached his fourteenth birthday shall contribute to or encourage any other child, who is at least two years his junior, whether by aiding or abetting or encouraging the younger child or by participating as a principal with the younger child, in running away from his parents, guardian or other custodian, or in loitering during school hours in violation of the Metropolitan Code, Section 11.28.080 or in committing any lewd or indecent act, or engaging in an act of sexual intercourse in a place of public resort. (Prior code § 29-1-41.4)

11.28.020 Adults contributing to the delinquency of minors.

No adult shall contribute to or encourage the delinquency or unruly behavior of a child, whether by aiding or abetting or encouraging the child in the commission of an act of delinquency or unruly behavior, or by participating as a principal with the child in an act of delinquency or unruly behavior, or by aiding the child in concealing an act of delinquency or unruly behavior following its commission. (Prior code § 29-1-40)

11.28.030 Assault—Indecent exposure.

A. It is unlawful for any person to assault any child under sixteen years of age; or to take indecent and improper liberties with the person of such child; or to entice, allure or persuade any such child into any room, office or any other place for the purpose of taking any immodest, immoral or indecent liberties with such child; or to take or attempt to take any such liberties with the person of such child at any place.

B. It is unlawful to be in the proximity of any child under sixteen years of age in a state of indecent exposure with intent to assault or ravish such child. (Prior code § 29-1-39)

11.28.040 Improper advances—Offers to ride in vehicles.

It is unlawful for any person with intent to make indecent, repulsive or improper advances or proposals to any child under eighteen years of age, to take such child for a ride in a vehicle or to otherwise accompany such child, or attempt to do any of the foregoing. Where any such person, not being related to or known to such child, takes such child for a ride or invites such child for a ride in a vehicle or attempts to accompany such child, there shall be a presumption of an intent to make indecent, repulsive or improper advances or proposals to such child. (Prior code § 29-1-39.1)

11.28.050 Glue and related substances—Sale and use restrictions.

A. Except as otherwise provided in this section, no person shall sell, deliver or give to any individual under the age of twenty-one years any glue or cement commonly known as model airplane glue, plastic cement, household cement, cement or any other similar substance, if such glue or cement contains one or more of the following solvents:

1. Toluol;
2. Hexane;
3. Trichlorethylene;
4. Acetone;

5. Teluene;
6. Ethyl acetate;
7. Methyl ethyl ketone;
8. Trichloroethane;
9. Isopropanol;
10. Methyl isobutyl ketone;
11. Methyl cellosolve acetate;
12. Cyclohexanone.

B. The provisions of subsection A of this section shall not apply where the glue or cement is sold, delivered or given simultaneously with and as part of a kit used for the construction of model airplanes, model boats, model automobiles, model trains or similar models.

C. It is unlawful for any person to be found in a public place under the influence of or in a state of intoxication as the result of inhaling any glue, cement or substance containing one or more of the solvents named in subsection A of this section.

D. 1. Any person other than a minor violating any of the provisions of this section shall be punished as provided in Section 1.01.030. Each act in violation of this section shall constitute a separate offense and shall be punishable as such hereunder.

2. Any minor violating any of the provisions of this section shall be dealt with in accordance with juvenile court law and procedure. (Ord. 95-1329 § 2 (part), 1995; prior code § 29-1-22.1)

11.28.070 Abandoning refrigerators in accessible places.

It is unlawful for any person to place, leave or permit to remain outside of any building or dwelling, or on or in unenclosed porches, areaways or other unenclosed portions of any building or dwelling, or in any accessible place to children, any abandoned, unattended or discarded icebox, refrigerator or any other container, under his control, which has a substantially airtight door or opening designed or intended to be fastened with a snap-lock or other mechanical device which when closed cannot readily be released for opening from the inside of such icebox, refrigerator or other container, unless such person shall first have removed such snap-lock or other mechanical device and the door or other opening which it is designed or intended to secure will open freely at all times, or unless such icebox, refrigerator or other container is firmly or securely nailed or welded shut. (Prior code § 29-1-29)

11.28.080 Loitering during school hours.

A. A child who has not reached his eighteenth birthday, and being subject to the state compulsory attendance law, Tennessee Code Annotated, Section 49-6-3001, shall not loiter, idle, wander or play in or upon the public streets, highways, alleys, parks, or other public places, buildings, businesses, places of amusement and entertainment, vacant lots or other unsupervised places during those hours he is required to be in school under the state compulsory school attendance law. Further, no child shall be taken into custody for violation of this section until an investigation with the proper school officials has been made to determine if the child is required to be in school. If a determination is made that the child is required to be in school, the child may be transported to either the Davidson County Juvenile Detention Center or to a Truancy Center established pursuant to T.C.A. § 49-6-3007(i).

B. A child who has not reached his eighteenth birthday, and being subject to the state compulsory attendance law, Tennessee Code Annotated, Section 49-6-3001, but who is suspended or expelled from school, or is otherwise not in compliance with the compulsory attendance law, shall not loiter, idle, wander or play in or upon the public streets, highways, alleys, parks, or other public places, buildings, businesses, places of amusement and entertainment, vacant lots or other unsupervised places during those hours the child is required to be in school under the state compulsory school attendance law if not for the suspension. Further, no child shall be taken into custody for violation of this section until an investigation with the proper school officials has been made to determine if the child is suspended or expelled and the termination of the suspension or expulsion period. For purposes of this section, "suspended" means a dismissal from attendance at school for any reason by a school official for a period of time not exceeding ten consecutive days; and "expelled" means a removal from attendance at school by a school official for more than ten consecutive days.

C. No parent, guardian or other adult person who has been delegated the care and custody of such child under the age of eighteen, shall knowingly permit such child to violate the provisions of this section. A parent, guardian or other adult person who has been delegated the care or custody of such child found to be in violation of this section shall be punished as provided in Section 1.01.030 of this code. (Ord. Bl2008-246 § 1, 2008; Ord. BL2005-531 § 1, 2005; Ord. 95-1329 § 2 (part), 1995; Ord. 92-413 §§ 1, 2, 1992; Ord. 90-1339 § 1 (part), 1990; prior code § 29-1-41.2)

11.28.120 Location of certain businesses restricted near places frequented by minors.

A. It is unlawful for any individual, firm, corporation, association, partnership, copartnership, or any other organization of any character whatsoever to exhibit,

within six hundred feet of any kindergarten, nursery schools, parks and playgrounds, dwelling for one or two families and places of worship, any motion picture or live performance, admission to which is denied by the exhibitor or prohibited by law to persons under eighteen years of age.

1. The violation of this subsection is declared to be a misdemeanor and any person, firm or corporation, upon being found guilty of such violation shall be fined fifty dollars for each offense.

2. Each separate exhibition of the same motion picture, or each separate occurrence of each live performance in violation of this subsection, shall constitute a separate offense.

3. There shall be excluded from this subsection any establishments under the provision of the beer and liquor ordinances.

B. It is unlawful for any individual, firm, corporation, association, partnership, copartnership, or any other organization of any character whatsoever which operates a business establishment within six hundred feet of any kindergarten, nursery schools, parks and playgrounds, dwelling for one or two families and places of worship to have on its premises coin-operated machines exhibiting still or moving pictures, or where any circular, poster, handbill, newspaper, magazine, picture, record or book is sold, offered for sale, distributed, exhibited or displayed if admission to such establishment, or the sale of any of the above items to persons under eighteen years of age is denied by the operator of the business establishment or prohibited by law.

1. The violation of this subsection of this section shall be declared a misdemeanor and any person, firm or corporation upon being found guilty of such violation shall be fined fifty dollars for each offense.

2. Every day any violation of this subsection of this section shall continue shall constitute a separate offense.

3. There shall be excluded from this subsection any establishments under the provisions of the beer and liquor ordinances.

C. In determining the distance between a kindergarten, nursery schools, parks and playgrounds, dwelling for one or two families and places of worship and a business establishment or place of exhibition for the purposes of this section, the distance shall be measured from the center of the entrance of the kindergarten, nursery schools, parks and playgrounds, dwelling for one or two families and places of worship nearest to the business establishment or place of exhibition in a straight line to the center of the entrance nearest to the kindergarten, nursery schools, parks and playgrounds, dwelling for one or two families and places of worship of such business establishment or place of exhibition. (Ord. BL2017-654 § 9, 2017; prior code § 29-1-41.3)

11.28.130 Admittance to certain movies not permitted—Penalty.

A. It is unlawful for any person to admit minors to any theater open to the general public for which an admission price is charged, to view a motion picture which carries a rating indicating that minors will not be admitted.

B. It is unlawful for any person to admit minors to any theater open to the general public for which an admission price is charged to view a motion picture which carries a rating indicating that minors will not be admitted unless accompanied by a parent or guardian when such minors are not accompanied by a parent or guardian.

C. Violation of this section shall, upon conviction, be punished as provided in Section 1.01.030 of this code. Each separate act of admitting a minor to a theater in violation of this section shall constitute a violation of this section. (Ord. 95-1329 § 2 (part), 1995; prior code § 29-1-41.1)

11.28.140 Indecent publications—Sale or exhibition in places frequented by minors.

A. Every person who shall wilfully engage in the business of selling, lending, giving away, showing, advertising for sale or distributing to any person under the age of eighteen years of age, or has in his possession with intent to engage in the said business or to otherwise offer for sale or commercial distribution to any individual under the age of eighteen years of age, or who shall display at newsstands or any other business establishments frequented by minors under the age of eighteen years of age, or where said minors are or may be invited as a part of the general public any motion picture, live show, or any still picture or photograph or any book, pocket book, pamphlet or magazine, the cover or content of which exploits, is devoted to, or is principally made up of descriptions or depictions of illicit sex or sexual immorality or which is lewd, lascivious or indecent, or which consists of pictures of nude or partially denuded figures posed or presented in a manner to provoke or arouse lust or passion or to exploit sex, lust or perversion for commercial gain or any article or instrument of indecent or immoral use shall, upon conviction, be punished by a fine of not more than five hundred dollars.

B. For the purposes of this section:

1. "Description or depictions of illicit sex or sexual immorality" means:

a. Human genitals in a state of sexual stimulation or arousal;

b. Acts of human masturbation, sexual intercourse or sodomy;

c. Fondling or other erotic touching of human genitals, pubic region, buttock or female breast.

2. "Nude or partially denuded figures" means:

a. Less than completely and opaquely covered:

i. Human genitals,

ii. Pubic regions,

iii. Buttock, and

iv. Female breast below a point immediately above the top of the areola;

b. Human male genitals in a discernibly turgid state, even if completely and opaquely covered.

3. "Knowingly" means having knowledge of the character and content of the publication or failure on notice to exercise reasonable inspection which would disclose the content and character of the same. (Ord. 95-1329 § 7, 1995; prior code § 29-1-41.5)

Article II. Juvenile Curfew

11.28.200 Definitions.

For the purposes of the article the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular and words in the singular number include the plural. The word "shall" is always mandatory and not merely directory.

"Chief of police" means the chief of police of the metropolitan government.

"Emergency" means an unforeseen combination of circumstances or the resulting state that calls for immediate action. The term includes, but is not limited to, a fire, natural disaster, or automobile accident, or any situation requiring immediate action to prevent serious bodily injury or loss of life.

"Juvenile" or "minor" is any unemancipated person under the age of eighteen or, in equivalent phrasing often herein employed, any person seventeen or less years of age.

"Parent" is any person having legal or physical custody of a juvenile (i) as a natural or adoptive parent, (ii) as a legal guardian, or (iii) as a person to whom legal or physical custody has been given by court order.

"Public place" means any place to which the public or a substantial group of the public has access and includes, but is not limited to, streets, common areas of schools, shopping centers, parking lots, parks, playgrounds, transportation facilities, theaters, restaurants, shops, bowling alleys, taverns, cafes, arcades, and similar areas that are open to the use of the public.

"Private place" means any place which is privately owned and includes, but is not limited to, buildings, motels, apartment complexes, trailer parks, railroad property, private schools, real property, and other similar areas that are not open to the public.

"Street" is a type of public space, way or place, of whatever nature, open to the use of the public as a matter of right for purposes of vehicular travel or in the case of a sidewalk thereof for pedestrian travel. Street includes that legal right of way including but not limited to the cartway of traffic lanes, the curb, the sidewalks whether paved or unpaved, and any grass plots or other grounds found within the legal right of way of a street. (Ord. BL2011-869 § 1, 2011)

11.28.210 Curfew for juveniles.

It shall be unlawful for any person seventeen years of age or less [under eighteen] to be or remain in or upon a public place, or a private place without consent of the property owner, leasee or a person of apparent authority acting on behalf of the leasee or owner, in Davidson County during the period ending at 5:00 a.m. and beginning:

A. At 11:00 p.m. Sunday through Thursday and 12:00 midnight Friday and Saturday between September 1st and May 31st, and

B. At 12:00 midnight between June 1st and August 31st. (Ord. BL2011-869 § 1, 2011)

11.28.220 Defenses.

The following shall constitute defenses to violations charged under this article:

This article shall not apply:

A. When a juvenile is accompanied by a parent of the juvenile.

B. When a juvenile is accompanied by an adult authorized by a parent of the juvenile to take the parent's place in accompanying the juvenile for a designated period of time and purpose within a specified area.

C. When the juvenile is on an errand as directed by the parent until the hour of 12:30 a.m.

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*__Editor's note—__Ord. BL2011-869, § 1, adopted May 17, 2011, repealed the former Art. II, §§ 11.28.200—11.28.280, and enacted a new Art. II as set out herein. The former Art. II pertained to similar subject matter and derived from Ord. BL99-1, § 1(part), adopted 1999; Resolution No. RS2005-689, § 1, adopted Feb. 15, 2005.

D. When a juvenile is exercising First Amendment rights protected by the United States Constitution, such as the free exercise of religion, freedom of speech, and the right of assembly. Such activity shall constitute an exception to this chapter when prior to such activity a written notice of the date, time, and place of the activity, signed by the juvenile and, if practicable, a parent of the juvenile, together with the name and address of the juvenile, has been received by the Chief of Police or a person designated by him to receive such information.

E. Until the hour of 12:30 a.m. if the juvenile is on the property of or the sidewalk directly adjacent to the place where such juvenile resides or a place immediately adjacent to the juveniles' residence if the owner of the adjacent property has given consent.

F. When a juvenile is attending, or traveling directly to or from home without detour or stop, from an official activity supervised by adults and sponsored by the Metropolitan Government, a religious or civic organization, or another similar adult supervised entity that takes responsibility for the juvenile.

G. In the case of reasonable necessity, but only after the juvenile's parent has communicated to law enforcement personnel the facts establishing the reasonable necessity, as well as the origin, destination and route of travel, the time of travel, and the place of the activity. Proof of the communication, including a notation of the time it was received by law enforcement, names and addresses of the parent and juvenile, and the police personnel notified, constitute evidence of qualification under this exception. This may be handled by telephone or other effective communication.

H. While the juvenile is engaged in legal employment and for the period from forty-five minutes before to forty-five minutes after work, while going directly between the juvenile's home and place of employment. The juvenile must be carrying written evidence of employment which is issued by the employer;

I. When the juvenile is engaged in normal interstate travel with parental consent. (Ord. BL2011-869 § 1, 2011)

11.28.230 Parental responsibility.

A. It shall be unlawful for a parent of a juvenile to permit, either knowingly or negligently, the juvenile to remain in or on any public place, or private place without consent of the property owner, in Davidson County under circumstances not constituting an exception listed in Section 11.28.220 herein. The term "knowingly" includes knowledge that a parent should reasonably be expected to have concerning the whereabouts of a juvenile in that parent's legal custody. This requirement is intended to hold a neglectful or careless parent up to a reasonable community standard of parental responsibility through an objective test. It shall, therefore, be no defense that a parent was completely indifferent to the activities or conduct or whereabouts of such juvenile.

B. If a juvenile satisfies an exception under Section 11.28.220, the juvenile's parent may not be prosecuted under this parental responsibility section. (Ord. BL2011-869 § 1, 2011)

11.28.240 Enforcement procedures.

A. When any juvenile is in violation of this article, the apprehending officer shall take action in one of the following ways:

1. In the case of a first violation and if in the opinion of the officer such action would be effective, take the juvenile to the juvenile's home and warn and counsel with the parent(s);

2. Issue a juvenile citation;

3. Bring the child into the custody of the juvenile court, which in addition to any other disposition provided by law, may assess a penalty; or

4. Issue a citation to the parent for violation of Section 11.28.230, Parental Responsibility.

B. The Juvenile Court may, as part of the disposition of the case, assess a penalty against the juvenile for each violation of this article. In addition to or in lieu of a penalty the Juvenile Court may require the juvenile to perform community service.

C. Pursuant to Chapter 191, Public Acts of 1995, the juvenile court may assess a penalty in an amount not to exceed fifty dollars against a parent violating the provisions of this article. Each violation of this article shall constitute a separate offense. (Ord. BL2011-869 § 1, 2011)

11.28.250 Construction and severability.

Severability is intended throughout and within the provisions of the article. If any provision, including any exception, part, phrase, or term, or the application thereof to any person or circumstances is held invalid, the application to other persons or circumstances shall not be affected thereby and the validity of the article or the other parts thereof shall not be affected thereby in any and all respects. (Ord. BL2011-869 § 1, 2011)

11.28.260 Curfew—Continuing evaluation.

The office of the mayor shall periodically review statistics related to the enforcement of this article, including, but not limited to, the manner in which violations are handled under the provisions of Section 11.28.240 above. The chief of police shall maintain such information in a manner in which it may be produced

within a reasonable time upon request. (Ord. BL2011-869 § 1, 2011)

11.28.270 Curfew—Notice.

Adequate notice of the existence of Sections 11.28.200 through 11.28.270 and of the curfew established by them shall be given periodically. (Ord. BL2011-869 § 1, 2011)

Chapter 11.32

MISCELLANEOUS OFFENSES

Sections:

11.32.010	**Nonsubscription newspapers—Discontinuance of delivery required when.**
11.32.020	**Wells, cisterns and shafts—Covering required.**
11.32.030	**Possession of marijuana in certain amounts.**

11.32.010 Nonsubscription newspapers—Discontinuance of delivery required when.

A. Any distributor of nonsubscription newspapers, handbills, or similar materials, regardless of content, that are periodically delivered by depositing the newspapers, handbills, or similar materials upon the property of another, within the area of the metropolitan government, and that are not delivered by the United States Postal Service, shall stop such delivery within ten days after receiving written notice, sent by U.S. Mail, from an occupant of the premises to which delivery is being made requesting that delivery be stopped. For the purposes of this section, periodic delivery shall mean delivery two or more times a month for two or more consecutive months.

B. Any person, partnership or corporation who is found to have violated this section shall be fined fifty dollars. Each delivery in violation of this section shall be considered a separate offense. (Amdt. 1 to Ord. 89-748, 5/16/89; Ord. 89-748 § 1, 1989; prior code § 29-1-68)

11.32.020 Wells, cisterns and shafts—Covering required.

A. The owners, lessees or occupants of real property or residences in the area of the metropolitan government, where there is a well, cistern or shaft located on such property or any portion thereof, shall keep the openings to such wells, cisterns or shafts securely covered so that no small child or person can fall into the opening thereof.

B. It is unlawful for any owner, lessee or occupant of such real property or residences where a well, cistern or shaft located thereon to fail to securely cover the opening to such well, cistern or shaft. (Prior code § 29-1-66)

11.32.030 Possession of marijuana in certain amounts.

A. It is an offense for a person to knowingly possess a small amount of marijuana not in excess of one-half ounce (14.175 grams).

B. A police officer shall have the authority to issue a civil citation to persons found in violation of this section. The amount of the civil penalty shall be fifty dollars for each violation. The court may, in its discretion, suspend the civil penalty imposed under this subsection if the person found liable agrees to and does in fact perform such community service as the court deems appropriate, up to ten hours. (Ord. BL2016-378 § 1, 2016)

Division II. Urban Services District

Chapter 11.36

FIREARMS AND OTHER WEAPONS

Sections:

11.36.010	**Definitions.**
11.36.020	**Manufacturer's or dealer's license—Application—Fee—Revocation.**
11.36.030	**Dealer's records.**
11.36.040	**Pistol sales—Notice to police—Delivery requirements.**
11.36.050	**False information—Dealer's license—Purchasing records.**
11.36.060	**Sale prohibited to certain persons.**
11.36.070	**Possession prohibited by certain persons.**
11.36.080	**Sale to minors prohibited.**
11.36.090	**Removal or alteration of manufacturer's identification number.**
11.36.100	**Stolen firearms.**
11.36.110	**Carrying certain weapons prohibited—Exceptions.**
11.36.120	**Disposition of confiscated weapons.**

11.36.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Crime of violence" means and includes murder; manslaughter; rape; mayhem; kidnapping; burglary; housebreaking; assault with intent to kill, commit rape or rob; assault with a dangerous weapon; or assault with intent to commit any offense punishable by imprisonment.

"Firearm" means any weapon by whatever name known, which is designed to expel a projectile by the action of expanding gases.

"Fugitive from justice" means any person who has fled or is fleeing from any law enforcement officer to avoid prosecution or incarceration for a crime of violence or to avoid giving testimony in any criminal proceeding.

"Manufacturer" or "dealer" means any person engaged in the business of manufacturing, repairing or selling firearms at wholesale or retail, or of accepting or pledging firearms as security for loans.

"Pistol" means any firearm with a barrel less than twelve inches in length. (Ord. 90-1339 § 1 (41-1), 1990; prior code § 41-2-1)

11.36.020 Manufacturer's or dealer's license—Application—Fee—Revocation.

A. Application for a firearms manufacturer's or dealer's license shall be made to the metropolitan collections officer on forms prescribed and furnished by him. The application shall indicate the business name of the applicant, the business address, the name and home address of the proprietor or proprietors (if a partnership) or of the president and secretary (if a corporation) and such other pertinent information as may be required by the metropolitan collections officer. The application may be filed in person or by United States mail. It shall be accompanied by the license fee. The metropolitan collections officer, by and with the advice and consent of the chief of police, having assured himself that the applicant is of good repute shall, within ten days of the date of receipt of the application, issue the license required by this chapter. Such license shall be valid until revoked; except, that a new application shall be filed whenever there is a change in the business address or proprietorship of the licensee.

B. The license fee shall be five dollars.

C. Should the metropolitan collections officer determine that the applicant is not a suitable person to be licensed under the provisions of this chapter, the applicant shall be so notified in writing within ten days of the date of receipt of the application by the metropolitan collections officer, and the license shall be refused.

D. Any person aggrieved by the refusal of a license may appeal by certiorari to the circuit court. After examination of the evidence presented by the metropolitan collections officer and hearing the applicant, the court shall, in its discretion, direct that the license be issued or refused.

E. Whenever any licensee under this section is convicted of a violation of any of the provisions of this chapter, it shall be the duty of the clerk of the metropolitan court to notify the metropolitan collections officer within forty-eight hours after such conviction, and the metropolitan collections officer shall suspend or revoke such license; provided, that in the case of an appeal from such conviction, the metropolitan collections officer shall permit the licensee to continue business until notified by the clerk of the court of last appeal to the final disposition of the case.

F. Any license revoked for a violation of this chapter, as provided in subsection E of this section, shall not be renewed within five years of the date of revocation. (Prior code § 41-2-6)

11.36.030 Dealer's records.

A true record shall be made by each licensed manufacturer or dealer in firearms within the urban services district, on the form prescribed by the chief of police, of each firearm sold, pledged as security for a loan, transferred or otherwise disposed of at wholesale or retail. This record shall contain the date of sale or the dates of pledge and redemption for a loan, the caliber, make, model and manufacturer's number of the firearm and the name and address of the purchaser or person depositing the firearm as security for a loan. Such record shall be retained by the manufacturer or dealer for a period of not less than three years following the date of such sale. (Prior code § 41-2-7)

11.36.040 Pistol sales—Notice to police—Delivery requirements.

Each licensed manufacturer or dealer shall transmit to the chief of police, by United States mail, within twenty-four hours, a notification of all sales of pistols made at retail, giving the information required by Section 11.36.030. When delivered, all pistols shall be securely wrapped and shall be unloaded. (Prior code § 41-2-8)

11.36.050 False information—Dealer's license—Purchasing records.

A. No person shall, in applying for a license as a manufacturer or dealer, give false information or offer false evidence of his identity.

B. No person shall give false information concerning his name and address or offer false evidence of his identity when purchasing a firearm. (Prior code § 41-2-10)

11.36.060 Sale prohibited to certain persons.

It is unlawful for any person to sell, lease, lend or otherwise transfer a firearm within the urban services district to any person whom he knows or has reasonable cause to believe has been convicted of a crime of violence or who is a fugitive from justice or who is of unsound mind or who is a drug addict or an habitual drunkard. (Ord. 90-1339 § 1 (41-2), 1990; prior code § 41-2-2)

11.36.070 Possession prohibited by certain persons.

It is unlawful for any person who has been convicted of a crime of violence in any court of the United States, the several states, territories, possessions or the District of Columbia, or who is a fugitive from justice, or is of unsound mind or is a drug addict or an habitual drunkard, to possess a firearm within the urban services district. (Ord. 90-1339 § 1 (41-3), 1990; prior code § 41-2-3)

11.36.080 Sale to minors prohibited.

No person shall sell, lease or transfer a pistol, except when the relation of parent and child or guardian and ward exists, to any person under the age of twenty-one years. (Prior code § 41-2-9)

11.36.090 Removal or alteration of manufacturer's identification number.

It is unlawful for any person to obliterate, remove, change or alter the manufacturer's identification mark or number on any pistol. Whenever, in a trial for a violation of this section, the defendant is shown to have or have had possession of any such pistol, such fact shall be presumptive evidence that the defendant obliterated, removed, changed or altered the manufacturer's identification mark or number, unless the defendant can produce a bill of sale indicating that the pistol was legally purchased and that the manufacturer's identification mark or serial number was obliterated or defaced at the time of purchase. (Prior code § 41-2-5)

11.36.100 Stolen firearms.

It is unlawful within the urban services district for any person to receive, conceal, store, barter, sell, lease, lend or otherwise transfer, or to pledge or accept as security for a loan, any firearm, knowing or having reasonable cause to believe the same to have been stolen. (Prior code § 41-2-4)

11.36.110 Carrying certain weapons prohibited—Exceptions.

A. It is unlawful for any person within the urban services district, to carry, publicly or privately, any dirk, razor concealed about his person, sword cane, loaded cane, slung-shot or brass knucks, Spanish stiletto, belt or pocket pistol, revolver or any kind of pistol, except the army or navy pistol usually used in warfare, which shall be carried openly.

B. It shall be the duty of every police officer who sees any person with or knows of any person carrying the weapons named in this section to immediately arrest every such person.

C. The provisions of this section relating to carrying of deadly weapons do not extend to police or other officers or persons who are entitled by law to carry such deadly weapons, nor do they extend to the act of handling or moving such deadly weapons in any ordinary business way. (Prior code § 41-2-11)

11.36.120 Disposition of confiscated weapons.

All pistols, knives and other weapons, the carrying of which is unlawful, which may be found upon any persons

arrested by the police, shall be seized by the chief of police and shall be turned over to the clerk of the metropolitan court, and disposed of by order of the metropolitan judge as required by law, and shall in no case be returned to the individual from whom the same were taken, or to anyone claiming the same. (Prior code § 41-2-12)

THE CODE OF THE METROPOLITAN GOVERNMENT OF NASHVILLE AND DAVIDSON COUNTY, TENNESSEE

VOLUME II

A Codification of the General Ordinances of Nashville and Davidson County, Tennessee Published in 2006

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TABLE OF CONTENTS

VOLUME I

Supplement History Table

Charter and Related Private Laws

Title 1 General Provisions

Title 2 Administration

Title 3 Personnel

Title 4 Procurement

Title 5 Revenue and Finance

Title 6 Business Licenses and Regulations

Title 7 Alcoholic Beverages

Title 8 Animals

Title 9 (Reserved)

Title 10 Health and Safety

Title 11 Public Peace, Morals and Welfare

VOLUME II

Title 12 Vehicles and Traffic

Title 13 Streets, Sidewalks and Public Places

Title 14 (Reserved)

Title 15 Water, Sewers and Other Public Services

Title 16 Buildings and Construction

Title 17 Zoning

Statutory References

Tables

Index

Title 12

VEHICLES AND TRAFFIC*

***State law reference—**Motor and other vehicles, T.C.A. title 55.

Chapters:

12.04	**Definitions**
12.08	**General Regulations, Administration and Enforcement**
12.12	**Traffic-Control Devices**
12.16	**Rules of the Road**
12.20	**Speed Restrictions**
12.24	**Through Streets and Stop Intersections**
12.28	**One-Way Street and Alleys**
12.32	**Equipment**
12.36	**Size, Weight and Load Restrictions**
12.40	**Parking**
12.41	**Valet Services**
12.42	**Permit Parking Programs**
12.44	**Parking Meter Zones**
12.48	**Loading and Unloading**
12.52	**Pedestrians**
12.54	**Horse-Drawn Carriages**
12.56	**Parades**
12.58	**Scooters, Roller Skates and In-Line Skates**
12.60	**Bicycles**
12.61	**Personal Delivery Devices**
12.62	**Shared Urban Mobility Devices**
12.64	**Motorcycles**
12.68	**Miscellaneous Driving Rules**
12.69	**Cruising on Public Streets**
12.72	**Tow-In Lots**
12.76	**Railroads and Grade Crossings**
12.80	**Ferries**
12.84	**Violations—Fine Schedules**

Chapter 12.04

DEFINITIONS

Sections:

12.04.005 Definitions and interpretation of language.
12.04.010 Alley.
12.04.015 Arterial street.
12.04.020 Authorized emergency vehicle.
12.04.025 Bicycle.
12.04.030 Bus.
12.04.035 Business district.
12.04.040 Cancellation of driver's license.
12.04.045 Controlled-access highway.
12.04.050 Crosswalk.
12.04.055 Curb.
12.04.060 Dealer.
12.04.065 Divided highway.
12.04.070 Driveaway-towaway operation.
12.04.075 Driver.
12.04.080 Driver's license.
12.04.085 Essential parts.
12.04.090 Established place of business.
12.04.095 Explosives.
12.04.100 Farm tractor.
12.04.105 Flammable liquid.
12.04.110 Freight curb loading zone.
12.04.115 Gross weight.
12.04.120 Highway.
12.04.125 House trailer.
12.04.130 Identifying number.
12.04.135 Implement of husbandry.
12.04.137 In-line skates.
12.04.140 Intersection.
12.04.145 Laned roadway.
12.04.150 License or license to operate a motor vehicle.
12.04.155 Lienholder.
12.04.160 Mail.
12.04.165 Manufacturer.
12.04.170 Metal tire.
12.04.175 Motorcycle.
12.04.180 Motor-driven cycle.
12.04.185 Motor home.
12.04.190 Motor vehicle.
12.04.193 Motorized scooter.
12.04.194 Non-motorized scooter.
12.04.195 Nonresident.
12.04.200 Nonresident's operating privilege.
12.04.205 Official time standard.
12.04.210 Official traffic-control devices.
12.04.215 Owner.
12.04.220 Park or parking.
12.04.225 Parking lot.
12.04.230 Parking meter.
12.04.235 Parking meter space.
12.04.240 Passenger car.
12.04.245 Passenger curb loading zone.
12.04.250 Pedestrian.
12.04.255 Person.
12.04.260 Pneumatic tire.
12.04.265 Pole trailer.
12.04.270 Police officer.
12.04.275 Private road or driveway.
12.04.280 Railroad sign or signal.
12.04.285 Railroad train.
12.04.290 Reconstructed vehicle.
12.04.295 Registration.
12.04.300 Residence district.
12.04.305 Revocation of driver's license.
12.04.310 Right-of-way.
12.04.315 Roadway.
12.04.317 Roller skates.
12.04.320 Safety zone.
12.04.325 School bus.
12.04.330 Semi-trailer.
12.04.335 Sidewalk.
12.04.340 Solid rubber tire.
12.04.345 Specially constructed vehicle.
12.04.350 Special mobile equipment.
12.04.355 Stand or standing.
12.04.360 State.
12.04.365 Stop.
12.04.370 Stop or stopping.
12.04.375 Street.
12.04.380 Suspension of driver's license.
12.04.385 Through highway.
12.04.390 Reserved.
12.04.395 Tractor.
12.04.400 Traffic.
12.04.405 Traffic-control signal.
12.04.410 Trailer.
12.04.415 Truck.
12.04.420 Truck-camper.
12.04.425 Truck tractor.
12.04.430 Urban district.
12.04.435 Vehicle.

12.04.005 Definitions and interpretation of language.

The following words and phrases, when used in this title shall, for the purpose of this title, have the meanings respectively ascribed to them in this chapter, except

when the context otherwise requires. (Prior code § 27-1-1 (part))

12.04.010 Alley.

"Alley" means a street or highway intended to provide access to the rear or side of lots or buildings in urban districts and not intended for the purpose of through vehicular traffic. (Prior code § 27-1-1 (part))

12.04.015 Arterial street.

"Arterial street" means a street designated as either an "arterial-boulevard" or an "arterial-parkway" on the Major and Collector Street Plan adopted by the Metropolitan Planning Commission. (Ord. BL2017-659 § 1, 2017; prior code § 27-1-1 (part))

12.04.020 Authorized emergency vehicle.

"Authorized emergency vehicle" means such fire department vehicles, police vehicles and ambulances as are publicly owned, and such other publicly or privately owned vehicles as are designated by the chief of police and/or traffic and parking commission. (Prior code § 27-1-1 (part))

12.04.025 Bicycle.

"Bicycle" means any vehicle upon which a person may ride which is propelled exclusively or in part by human power using pedals and having two or more wheels. (Ord. 99-1815 § 13, 1999)

12.04.030 Bus.

"Bus" means every motor vehicle designed for carrying more than ten passengers and used for the transportation of persons, and every motor vehicle, other than a taxicab, designed and used for the transportation of persons for compensation. (Prior code § 27-1-1 (part))

12.04.035 Business district.

"Business district", as defined in Tenn. Code Ann. § 55-8-101(9), means the territory contiguous to and including a highway when, within any six hundred feet along the highway, there are buildings in use for business or industrial purposes, including, but not limited to, hotels, banks, or office buildings, railroad stations and public buildings that occupy at least three hundred feet of frontage on one side or three hundred feet collectively on both sides of the highway. (Ord. BL2018-1203 § 3, 2018; prior Code § 27-1-1 (part))

12.04.040 Cancellation of driver's license.

"Cancellation of driver's license" means the annulment or termination by formal action of the Tennessee Department of Motor Vehicles of a person's driver's license because of some error or defect in the license or because the licensee is no longer entitled to such license, but the cancellation of a license is without prejudice, and application for a new license may be made at any time after such cancellation. (Prior code § 27-1-1 (part))

12.04.045 Controlled-access highway.

"Controlled-access highway" means every highway, street or roadway in respect to which owners or occupants of abutting lands, and other persons, have no legal right of access to or from the same except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway. (Prior code § 27-1-1 (part))

12.04.050 Crosswalk.

"Crosswalk" means:

A. That part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highway, measured from the curbs or, in the absence of curbs, from the edges of the traversable roadway;

B. Any portion of a roadway, at an intersection or elsewhere, distinctly indicated for pedestrian crossing by lines or other markings on the surface. (Prior code § 27-1-1 (part))

12.04.055 Curb.

"Curb" means the lateral boundary of that portion of the street designated for the use of vehicles, whether marked with a curbstone or not. (Prior code § 27-1-1 (part))

12.04.060 Dealer.

"Dealer" means every person in the business of buying, selling or exchanging vehicles. (Prior code § 27-1-1 (part))

12.04.065 Divided highway.

"Divided highway" means a highway divided into two or more roadways by leaving an intervening space or by a physical barrier, or by a clearly indicated dividing section so constructed as to impede vehicular traffic. (Prior code § 27-1-1 (part))

12.04.070 Driveaway-towaway operation.

"Driveaway-towaway operation" means any operation in which any motor vehicle, trailer or semi-trailer, singly or in combination, new or used, constitutes the commodity being transported, when one set or more of wheels of any such vehicle are on the roadway during the course of transportation, whether or not any such

vehicle furnishes the motive power. (Prior code § 27-1-1 (part))

12.04.075 Driver.

"Driver" means every person who drives or is in actual physical control of a vehicle. (Prior code § 27-1-1 (part))

12.04.080 Driver's license.

"Driver's license" means any license to operate a motor vehicle, issued under the laws of the State of Tennessee. (Prior code § 27-1-1 (part))

12.04.085 Essential parts.

"Essential parts" means all integral and body parts of vehicle of a type required to be registered hereunder, the removal, alteration or substitution of which would tend to conceal the identity of the vehicle or substantially alter its appearance, model, type or mode of operation. (Prior code § 27-1-1 (part))

12.04.090 Established place of business.

"Established place of business" means the place actually occupied either continuously or at regular periods by a dealer or manufacturer where his books and records are kept and a large share of his business is transacted. (Prior code § 27-1-1 (part))

12.04.095 Explosives.

"Explosives" means any chemical compound or mechanical mixture that is commonly used or intended for the purpose of producing an explosion and which contains any oxidizing and combustive units or other ingredients in such proportions, quantities or packing that an ignition by fire, by friction, by concussion, by percussion or by detonator of any part of the compound or mixture may cause such a sudden generation of highly heated gases that the resultant gaseous pressures are capable of producing destructive effects on contiguous objects or of destroying life or limb. (Prior code § 27-1-1 (part))

12.04.100 Farm tractor.

"Farm tractor" means every motor vehicle designed and used primarily as a farm implement, for drawing plows, mowing machines and other implements of husbandry. (Prior code § 27-1-1 (part))

12.04.105 Flammable liquid.

"Flammable liquid" means any liquid which has a flash point of seventy degrees Fahrenheit, or less as determined by a tagliabue or equivalent closed-cup test device. (Prior code § 27-1-1 (part))

12.04.110 Freight curb loading zone.

"Freight curb loading zone" means a space adjacent to a curb for the exclusive use of vehicles during the loading or unloading of freight. (Prior code § 27-1-1 (part))

12.04.115 Gross weight.

"Gross weight" means the weight of a vehicle without load, plus the weight of any load thereon. (Prior code § 27-1-1 (part))

12.04.120 Highway.

"Highway" means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel. (Prior code § 27-1-1 (part))

12.04.125 House trailer.

"House trailer" means:

A. A trailer or semi-trailer which is designed, constructed and equipped as a dwelling place, living abode or sleeping place, either permanently or temporarily, and is equipped for use as a conveyance on streets and highways; or

B. A trailer or a semi-trailer whose chassis and exterior shell is designed and constructed for use as a house trailer, as defined in subsection A of this section, but which is used instead permanently or temporarily for the advertising, sales, display or promotion of merchandise or services, or for any other commercial purpose, except for the transportation of property for hire or the transportation of property for distribution by a private carrier. (Prior code § 27-1-1 (part))

12.04.130 Identifying number.

"Identifying number" means the numbers, and letters, if any, on a vehicle designated by the State of Tennessee for the purpose of identifying the vehicle. (Prior code § 27-1-1 (part))

12.04.135 Implement of husbandry.

"Implement of husbandry" means every vehicle designed or adapted and used exclusively for agricultural operations and only incidentally operated or moved upon the highways. (Prior code § 27-1-1 (part))

12.04.137 In-line skates.

"In-line skates" means manufactured or assembled devices consisting of a boot or upper portion attached to the foot, a frame holding two or more wheels aligned longitudinally. (Ord. 98-1352 § 3 (part), 1998)

12.04.140 Intersection.

"Intersection" means:

A. The area embraced within the prolongation or connection of the lateral curblines or, if none, then the lateral boundary lines of the roadways of two highways which join one another at, or approximately at, right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict.

B. Where a highway includes two roadways thirty feet or more apart, then every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection. In the event such intersecting highway also includes two roadways thirty feet or more apart, then every crossing of two roadways of such highways shall be regarded as a separate intersection.

C. The junction of an alley with a street or highway shall not constitute an intersection. (Prior code § 27-1-1 (part))

12.04.145 Laned roadway.

"Laned roadway" means a roadway which is divided into two or more clearly marked lanes for vehicular traffic. (Prior code § 27-1-1 (part))

12.04.150 License or license to operate a motor vehicle.

"License or license to operate a motor vehicle" means any driver's license or any other license or permit to operate a motor vehicle issued under, or granted by, the laws of this state including:

A. Any temporary license or instruction permit;

B. The privilege of any person to drive a motor vehicle whether or not such person holds a valid license;

C. Any nonresident's operating privilege as defined herein. (Prior code § 27-1-1 (part))

12.04.155 Lienholder.

"Lienholder" means a person holding a security interest in a vehicle. (Prior code § 27-1-1 (part))

12.04.160 Mail.

"Mail" means to deposit in the United States mail properly addressed and with postage prepaid. (Prior code § 27-1-1 (part))

12.04.165 Manufacturer.

"Manufacturer" means every person engaged in the business of constructing or assembling vehicles of a type required to be registered hereunder at an established place of business in this state. (Prior code § 27-1-1 (part))

12.04.170 Metal tire.

"Metal tire" means every tire, the surface of which in contact with the highway is wholly or partly of metal or other hard, nonresilient material. (Prior code § 27-1-1 (part))

12.04.175 Motorcycle.

"Motorcycle" means every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, but excluding a tractor. (Prior code § 27-1-1 (part))

12.04.180 Motor-driven cycle.

"Motor-driven cycle" means every motorcycle, including every motor scooter, with a motor which produces not to exceed five brake horsepower, and every bicycle with motor attached. (Prior code § 27-1-1 (part))

12.04.185 Motor home.

"Motor home" means every motor vehicle designed, used or maintained primarily as a mobile dwelling, office or commercial space. (Prior code § 27-1-1 (part))

12.04.190 Motor vehicle.

"Motor vehicle" means every vehicle which is self-propelled, and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails. (Prior code § 27-1-1 (part))

12.04.193 Motorized scooter.

"Motorized scooter" means a device with a front set and rear set of wheels with a footboard between, steered by a handlebar, and is propelled with aid of a motor or other non-manual propulsion device. (Ord. BL2018-1203 § 1, 2018)

12.04.194 Non-motorized scooter.

"Non-motorized scooter" means a device with a front set and rear set of wheels with a footboard between, steered by a handlebar, and is propelled without aid of a motor or other non-manual propulsion device. (Ord. BL2018-1203 § 2, 2018)

12.04.195 Nonresident.

"Nonresident" means every person who is not a resident of this state. (Prior code § 27-1-1 (part))

12.04.200 Nonresident's operating privilege.

"Nonresident's operating privilege" means the privilege conferred upon a nonresident by the laws of this state pertaining to the operation by such person of a motor

vehicle, or the use of a vehicle owned by such person, in this state. (Prior code § 27-1-1 (part))

12.04.205 Official time standard.

Whenever certain hours are named in this title, they shall mean standard time or daylight saving time, as may be in current use in Metropolitan Nashville, Davidson County, Tennessee. (Prior code § 27-1-1 (part))

12.04.210 Official traffic-control devices.

"Official traffic-control devices" means all signs, signals, markings and devices not inconsistent with this title placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning or guiding traffic. (Prior code § 27-1-1 (part))

12.04.215 Owner.

"Owner" means a person, other than a lienholder, having the property in or title to a vehicle. The term includes a person entitled to the use and possession of a vehicle subject to a security interest in another person, but excludes a lessee under a lease not intended as security. (Prior code § 27-1-1 (part))

12.04.220 Park or parking.

"Park" or "parking" means the standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading property or passengers. (Prior code § 27-1-1 (part))

12.04.225 Parking lot.

"Parking lot" means any lot or area which is used for the parking of vehicles for which a fee may or may not be charged and which is private or open to the use of the general public. (Prior code § 27-1-1 (part))

12.04.230 Parking meter.

"Parking meter" means any device by which the time which a vehicle may be parked at any point on the streets of the metropolitan government is measured and a charge made therefor; a parking meter may include a parking pay station, including one that services multiple parking spaces. (Ord. BL2021-646 § 3, 2021; prior code § 27-1-1 (part))

12.04.235 Parking meter space.

"Parking meter space" means any space adjacent to a parking meter, or on the same block as a parking meter that services multiple spaces, and which is duly designated for the parking of a single vehicle. (Ord. BL2021-646 § 4, 2021; prior code § 27-1-1 (part))

12.04.240 Passenger car.

"Passenger car" means every motor vehicle, except motorcycles and motor-driven cycles, designed for carrying ten passengers or less and used for the transportation of persons. (Prior code § 27-1-1 (part))

12.04.245 Passenger curb loading zone.

"Passenger curb loading zone" means a place adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers. (Prior code § 27-1-1 (part))

12.04.250 Pedestrian.

"Pedestrian" means any person afoot. (Prior code § 27-1-1 (part))

12.04.255 Person.

"Person" means every natural person, firm, copartnership, association or corporation. (Prior code § 27-1-1 (part))

12.04.260 Pneumatic tire.

"Pneumatic tire" means every tire in which compressed air is designed to support the load. (Prior code § 27-1-1 (part))

12.04.265 Pole trailer.

"Pole trailer" means every vehicle without motive power designed to be drawn by another vehicle and attached to the towing vehicle by means of a reach or pole, or by being boomed or otherwise secured to the towing vehicle, and ordinarily used for transporting long or irregular-shaped loads such as poles, pipes or structural members capable, generally, of sustaining themselves as beams between the supporting connections. (Prior code § 27-1-1 (part))

12.04.270 Police officer.

"Police officer" means every officer of the metropolitan police department or any officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations. (Prior code § 27-1-1 (part))

12.04.275 Private road or driveway.

"Private road or driveway" means every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons. (Prior code § 27-1-1 (part))

12.04.280 Railroad sign or signal.

"Railroad sign or signal" means any sign, signal or device erected by authority of a public body or official

or by a railroad and intended to give notice of the presence of railroad tracks or the approach of a railroad train. (Prior code § 27-1-1 (part))

12.04.285 Railroad train.

"Railroad train" means a steam engine, electric or other motor, with or without cars coupled thereto, operated upon rails. (Prior code § 27-1-1 (part))

12.04.290 Reconstructed vehicle.

"Reconstructed vehicle" means every vehicle of a type required to be registered under this title materially altered from its original construction by the removal, addition or substitution of essential parts, new or used. (Prior code § 27-1-1 (part))

12.04.295 Registration.

"Registration" means the registration certificate or certificates and registration plates issued under the laws of the state pertaining to the registration of vehicles. (Prior code § 27-1-1 (part))

12.04.300 Residence district.

"Residence district" means the territory contiguous to and including a highway not comprising a business district when the property on such highway for a distance of three hundred feet or more is in the main improved with residences or residences and buildings in use for business. (Prior code § 27-1-1 (part))

12.04.305 Revocation of driver's license.

"Revocation of driver's license" means the termination by formal action of a person's license or privilege to operate a motor vehicle on the public highways, which termination shall not be subject to renewal or restoration except that an application for a new license may be presented and acted upon by the state after the expiration of the applicable period of time prescribed by the state. (Prior code § 27-1-1 (part))

12.04.310 Right-of-way.

"Right-of-way" means the right of one vehicle or pedestrian to proceed in a lawful manner in preference to another vehicle or pedestrian approaching under such circumstances of direction, speed and proximity as to give rise to danger of collision unless one grants precedence to the other. (Prior code § 27-1-1 (part))

12.04.315 Roadway.

"Roadway" means that portion of a highway improved, designed or ordinarily used for vehicular travel, exclusive of the berm or shoulder. In the event a highway includes two or more separate roadways, the term "roadway," as used in this title, shall refer to any such roadway separately but not to all such roadways collectively. (Prior code § 27-1-1 (part))

12.04.317 Roller skates.

"Roller skates" means manufactured or assembled devices consisting of a boot or upper portion attached to the foot and a frame holding two wheels near the toe and two wheels at the heel and braking device at the toe of at least one skate. (Ord. 98-1352 § 3 (part), 1998)

12.04.320 Safety zone.

"Safety zone" means the area or space officially set apart within a roadway for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone. (Prior code § 27-1-1 (part))

12.04.325 School bus.

"School bus" means every motor vehicle that complies with the color and identification requirements set forth in the most recent edition of Minimum Standards for School Buses, and is used to transport children to or from school or in connection with school activities, but not including buses operated by common carriers in urban transportation of school children. (Prior code § 27-1-1 (part))

12.04.330 Semi-trailer.

"Semi-trailer" means every vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle, and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle. (Prior code § 27-1-1 (part))

12.04.335 Sidewalk.

"Sidewalk" means that portion of a street between the curblines, or the lateral lines of a roadway, and the adjacent property lines, intended for use by pedestrians. (Prior code § 27-1-1 (part))

12.04.340 Solid rubber tire.

"Solid rubber tire" means every tire of rubber or other resilient material which does not depend upon compressed air for the support of the load. (Prior code § 27-1-1 (part))

12.04.345 Specially constructed vehicle.

"Specially constructed vehicle" means every vehicle of a type required to be registered under this title not originally constructed under a distinctive name, make, model or type by a generally recognized manufacturer

of vehicles and not materially altered from its original construction. (Prior code § 27-1-1 (part))

12.04.350 Special mobile equipment.

"Special mobile equipment" means every vehicle not designed or used primarily for the transportation of persons or property and only incidentally operated or moved over a highway, including but not limited to ditch-digging apparatus, well-boring apparatus and road construction and maintenance machinery such as asphalt spreaders, bituminous mixers, bucket loaders, tractors other than truck tractors, ditchers, levelling graders, finishing machines, motor graders, road rollers, scarifiers, earth moving carryalls and scrapers, power shovels and drag lines, and self-propelled cranes and earth moving equipment. The term does not include house trailers, dump trucks, truck-mounted transit mixers, cranes or shovels, or other vehicles designed for the transportation of persons or property to which machinery has been attached. (Prior code § 27-1-1 (part))

12.04.355 Stand or standing.

"Stand" or "standing" means the halting of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in receiving and/or discharging passengers. (Prior code § 27-1-1 (part))

12.04.360 State.

"State" means the State of Tennessee. (Prior code § 27-1-1 (part))

12.04.365 Stop.

"Stop," when required, means complete cessation from movement. (Prior code § 27-1-1 (part))

12.04.370 Stop or stopping.

"Stop" or "stopping," when prohibited, means any halting, even momentarily, of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control sign or signal. (Prior code § 27-1-1 (part))

12.04.375 Street.

"Street" means the entire width between boundary lines of every way publicly maintained when any part thereof is open to the use of the public for the purposes of vehicular travel. (Prior code § 27-1-1 (part))

12.04.380 Suspension of driver's license.

"Suspension of driver's license" means the temporary withdrawal by formal action of a person's license or privilege to operate a motor vehicle on the public highways, which temporary withdrawal shall be for a period specifically designated. (Prior code § 27-1-1 (part))

12.04.385 Through highway.

"Through highway" means every highway or portion thereof on which vehicular traffic is given preferential right-of-way, and at the entrances to which vehicular traffic from intersecting highways is required by law to yield the right-of-way to vehicles on such through highway in obedience to a stop sign, yield sign, or other official traffic-control device, when such signs or devices are erected as provided by resolution of traffic and parking commission. (Prior code § 27-1-1 (part))

12.04.390 Reserved.

Editor's note—Ord. BL2012-261, § 15, adopted Oct. 16, 2012, repealed § 12.04.390, which pertained to trackless trolley coach and derived from prior Code § 27-1-1 (part).

12.04.395 Tractor.

"Tractor" means any self-propelled vehicle designed or used as a traveling power plant or for drawing other vehicles, but having no provision for carrying loads independently. (Prior code § 27-1-1 (part))

12.04.400 Traffic.

"Traffic" means pedestrians, ridden or herded animals, vehicles and other conveyances, either singly or together, while using any street for purposes of travel. (Prior code § 27-1-1 (part))

12.04.405 Traffic-control signal.

"Traffic-control signal" means any device, whether manually, electrically or mechanically operated, by which traffic is alternately directed to stop and permitted to proceed. (Prior code § 27-1-1 (part))

12.04.410 Trailer.

"Trailer" means every vehicle, with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle, and so constructed that no part of its weight rests upon the towing vehicle. (Prior code § 27-1-1 (part))

12.04.415 Truck.

"Truck" means every motor vehicle designed, used or maintained primarily for the transportation of property. (Prior code § 27-1-1 (part))

12.04.420 Truck-camper.

"Truck-camper" means any structure designed, used or maintained primarily to be loaded on or affixed to a motor vehicle to provide a mobile dwelling, sleeping place, office or commercial space. (Prior code § 27-1-1 (part))

12.04.425 Truck tractor.

"Truck tractor" means every motor vehicle designed and used primarily for drawing other vehicles and not so constructed as to carry a load other than a part of the weight of the vehicle and load so drawn. (Prior code § 27-1-1 (part))

12.04.430 Urban district.

"Urban district" means the territory contiguous to and including any street which is built up with structures devoted to business, industry or dwelling houses situated at intervals of less than one hundred feet for a distance of a quarter of a mile or more. (Prior code § 27-1-1 (part))

12.04.435 Vehicle.

"Vehicle" means every device in, upon or by which any person or property is or may be transported or drawn upon a highway, excepting devices used exclusively upon stationary rails or tracks. (Prior code § 27-1-1 (part))

Chapter 12.08

GENERAL REGULATIONS, ADMINISTRATION AND ENFORCEMENT

Sections:

12.08.010 Compliance with Title 12 provisions.
12.08.020 Applicability of provisions—To highways.
12.08.030 Applicability of provisions—To other areas.
12.08.040 Emergency and experimental regulations authorized when.
12.08.050 Traffic direction and enforcement authority of police and fire department officials.
12.08.060 Obedience to enforcement officers.
12.08.070 Compliance by public employees required.
12.08.080 State registration plates—Required—Mounting and maintenance.
12.08.090 State registration plates—Unlawful use.
12.08.100 Driver's or chauffeur's license—Required.
12.08.110 Driver's or chauffeur's license—Unlawful uses designated.
12.08.120 Defensive driving course required for persons operating certain government vehicles.
12.08.130 Animal riding and persons propelling pushcarts.
12.08.140 Authorized emergency vehicles.
12.08.150 Impoundment of vehicles.
12.08.160 State offenses declared municipal misdemeanors.
12.08.170 Violation of regulations adopted by traffic and parking commission—Penalty.
12.08.180 Citations for violations.
12.08.190 Warrant for violations when person cited signs waiver of warrant on citation.
12.08.200 Service of process for actions involving nonpayment of certain traffic tickets or citations.
12.08.210 Abandoned vehicles.
12.08.220 Appeals.
12.08.230 Powers supplemental.

12.08.010 Compliance with Title 12 provisions.

It is unlawful for any person to do any act forbidden, or fail to perform any act required, in this title. (Prior code § 27-1-2)

12.08.020 Applicability of provisions—To highways.

The provisions of this title shall apply upon highways and elsewhere throughout the metropolitan area. (Prior code § 27-1-19)

12.08.030 Applicability of provisions—To other areas.

The provisions of these regulations relating to the operation of vehicles apply to every street, alley, sidewalk, driveway, parking area, park area and every other way within the corporate limits of this metropolitan government including, without in any way restricting the generality of the foregoing, any of said areas which are or may be privately owned and to which the public is invited or the use of which is or may be afforded to the public by acquiescence and without invitation. (Prior code § 27-1-20)

12.08.040 Emergency and experimental regulations authorized when.

A. The department of public works, by and with the approval of the chief of police, is empowered to make regulations necessary to make effective the provisions of this title and to make temporary or experimental regulations to cover emergencies or special conditions. No experimental regulations shall remain in effect for more than ninety days. Emergency temporary regulations shall have the same force and effect as regulations passed by the traffic and parking commission at its first meeting after the emergency regulation is put in effect.

B. The department of public works may test traffic-control devices under actual conditions of traffic. (Ord. 93-575 § 3, 1993; prior code § 27-1-3)

12.08.050 Traffic direction and enforcement authority of police and fire department officials.

A. It shall be the duty of the officers of the police department, or such officers as are assigned by the chief of police, to enforce all traffic laws and regulations of the metropolitan government and all state laws applicable to traffic in the metropolitan government area.

B. Officers of the police department, or such officers as are assigned by the chief of police, are authorized to direct all traffic by voice, hand or signal, in conform-

ance with traffic laws and regulations; provided that, in the event of a fire or other emergency, or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions may require, notwithstanding the provisions of the traffic laws or regulations.

C. Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity. (Prior code § 27-1-4)

12.08.060 Obedience to enforcement officers.

No person shall wilfully fail or refuse to comply with any lawful order or direction of any police officer or fireman invested by law with authority to direct, control or regulate traffic. (Prior code § 27-1-5)

12.08.070 Compliance by public employees required.

The provisions of this title shall apply to the driver of any vehicle owned by or used in the service of the United States Government, this state or any county, city or other governmental entity, and any of the provisions of this title, except as otherwise permitted in this title or by state statute. (Prior code § 27-1-7)

12.08.080 State registration plates—Required—Mounting and maintenance.

A. Except as otherwise provided in the Tennessee Code Annotated, no person shall operate any vehicle within the metropolitan government area unless such vehicle shall have affixed thereto current registration plates issued for the operation of the vehicle. Registration plates issued for passenger motor vehicles shall be attached one on the front and one on the rear. The registration plate issued for a truck shall be attached to the rear of the vehicle. The registration plate issued for a truck tractor shall be attached to the front of the vehicle. The registration plate issued for a motorcycle, trailer, semi-trailer or dealer's plate shall be attached to the rear of the vehicle.

B. Every registration plate shall at all times be securely fastened in a horizontal position to the vehicle for which it is issued, so as to prevent the plate from swinging and in a place and position to be clearly visible, and shall be maintained free from foreign materials and in a condition to be clearly legible.

C. Every certificate of registration shall at all times be carried in the vehicle to which it refers or shall be carried by the person driving or in control of such vehicle. The owner of the vehicle may, in order to ensure its safekeeping, provide a duplicate or facsimile of the certificate of registration to be kept in the vehicle.

The requirement that a certificate of registration be carried in the vehicle to which it refers, or by the person driving the same, shall not apply when such certificate of registration is used for the purpose of making application for renewal of registration or upon a transfer of the vehicle.

D. No person may drive a vehicle when that vehicle has an expired registration.

E. Section 12.84.010 sets out the penalty for violation of this section. (§ 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part) of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 4 (10), 1990; prior code § 27-1-10)

12.08.090 State registration plates—Unlawful use.

A. It is unlawful for any person to use or affix to any vehicle a registration plate other than the one issued for that vehicle.

B. Section 12.84.010 sets out the penalty for violation of this section. (§ 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part) of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 4 (11), 1990; prior code § 27-1-11)

12.08.100 Driver's or chauffeur's license—Required.

No person, except those exempted by Tennessee Code Annotated, shall drive any motor vehicle upon any street, alley or thoroughfare within the jurisdiction of the metropolitan government unless such person has a valid license as an operator or chauffeur as provided for in such state law. No person shall operate a motor vehicle as a chauffeur unless he holds a valid chauffeur's license. Every holder of a valid operator or chauffeur license shall have his license in his immediate possession at all times when operating a motor vehicle. In addition, whenever a holder of a valid operator or chauffeur license changes his address, he must notify the Tennessee Department of Motor Vehicles of such change of address within ten days of the change of address. (Ord. 93-727 § 1, 1993; prior code § 27-1-13)

12.08.110 Driver's or chauffeur's license—Unlawful uses designated.

It is unlawful for any person to:

A. Display or cause or permit to be displayed or have in his possession any fictitious or fraudulently altered operator's or chauffeur's license;

B. Lend his operator's or chauffeur's license to any other person, or knowingly permit the use thereof by another;

C. Display or represent as one's own any operator's or chauffeur's license not issued to him;

D. Permit any unlawful use of an operator's or chauffeur's license issued to him;

E. Do any act prohibited or fail to perform any act required by Tennessee Code Annotated. (Prior code § 27-1-14)

12.08.120 Defensive driving course required for persons operating certain government vehicles.

From and after July 1, 1974, no person shall operate a vehicle owned by the metropolitan government, or a vehicle the operation of which is reimbursable by the metropolitan government unless and until such person has completed the defensive driving course of the National Safety Council, or any equivalent program, and is in possession of proof of such completion. (Ord. 92-239 § 1, 1992; prior code § 27-1-8.1)

12.08.130 Animal riding and persons propelling pushcarts.

Every person propelling any pushcart or riding an animal upon a roadway and every person driving any animal-drawn vehicle shall be subject to the provisions of this title applicable to the driver of any vehicle, except those provisions of this title which by their very nature can have no application. (Prior code § 27-1-6)

12.08.140 Authorized emergency vehicles.

A. The driver of an authorized emergency vehicle, when responding to an emergency call, or when in the pursuit of an actual or suspected violator of the law, or when responding to, but not upon returning from a fire alarm, may exercise the privileges set forth in this section, but subject to the conditions herein stated.

B. The driver of an authorized emergency vehicle may:

1. Park or stand, irrespective of the provisions of this title;

2. Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation;

3. Exceed the maximum speed limits so long as he does not endanger life or property;

4. Disregard regulations governing direction of movement or turning in specified directions.

C. The exemptions herein granted to an authorized emergency vehicle shall apply only when such vehicle is making use of audible and visual signals meeting the requirements of the applicable laws of this state, except that an authorized emergency vehicle operated as a police vehicle may be equipped with or display a red light only in combination with a blue light visible from in front of the vehicle.

D. The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others. (Ord. 94-1180 § 1, 1994; prior code § 27-1-12)

12.08.150 Impoundment of vehicles.

A. As used in this title, the following definitions shall apply:

1. "Immobilization" or "Immobilize" means the attachment of any device to a vehicle that prevents the vehicle from being legally driven.

2. "Impoundment" means removing a vehicle from a street, alley, highway or thoroughfare to the nearest garage or other place of safety, or a garage designated or maintained by the police department or otherwise maintained by the metropolitan government.

B. Members of the metropolitan police department or the parking enforcement patrol or its contractor shall have authority to impound or immobilize any vehicle under the circumstances hereinafter enumerated:

1. When a vehicle is parked, stopped or standing upon any alley, street, highway or thoroughfare within the area of the metropolitan government in violation of any traffic or parking related regulation or ordinance of the metropolitan government, other than a violation of chapter 12.44 of the metropolitan code pertaining to metered parking (unless done in accordance with the specific provisions of subsection B.2. of this section pertaining to multiple parking violations);

2. When a vehicle is parked, stopped or standing upon any alley, street, highway or thoroughfare within the area of the metropolitan government in violation of any regulation or ordinance of the metropolitan government and the vehicle has three or more unpaid parking citations and/or a civil warrant has been issued for the collection of unpaid parking citations;

3. When a vehicle is so parked, stopped or standing upon any alley, street, highway or thoroughfare of the metropolitan government so as to obstruct the orderly flow of traffic thereon;

4. When a vehicle is left parked on any alley, street, highway or thoroughfare within the metropolitan government area for a period of forty-eight hours without current registration;

5. When a vehicle upon any alley, street, highway or thoroughfare in the metropolitan government area is so disabled as to constitute an obstruction to traffic and the person in charge of the vehicle does not provide for its custody and removal;

6. When the driver or operator of such vehicle has been arrested for driving under the influence of intoxicating liquor in violation of the Tennessee Code Annotated.

C. Whenever it becomes necessary to make an arrest of the operator or driver of any vehicle, the officer making the arrest shall allow the person arrested to remove his vehicle to the nearest legal parking location or to turn over the custody of his vehicle to another person present and not placed under arrest, and capable of providing for the custody and removal of the vehicle.

D. Whenever an officer of the metropolitan police department or the parking enforcement patrol or its contractor (with authorization from the parking enforcement patrol) removes a vehicle from any alley, street, highway or thoroughfare, as authorized in this section, the officer or contractor shall obtain from the wrecker or tow-in service employee a receipt in triplicate, one copy of which shall be retained by the wrecker or tow-in service employee, describing the vehicle, the reasons for its removal, the place where the vehicle is to be stored, and all items of a personal nature found in the vehicle and not attached to or a part of the vehicle. Such officer or contractor shall give or cause to be given to the owner of such vehicle the duplicate copy of such receipt described in the preceding sentences as notice to such owner of the fact of removal. The original of such receipt described above shall be retained by the police department, or parking enforcement patrol, (as applicable) as a permanent record. If the parking enforcement patrol's contractor arranges for the removal of the vehicle, the contractor shall turn over the duplicate copy of this receipt to the parking enforcement patrol staff at the Department of Public Works for retention.

E. The owner or authorized driver or operator of the impounded vehicle may submit an application to the police department, parking enforcement patrol or its contractor (as applicable) to take possession of the same and remove such vehicle from the place to which it has been removed or stored by paying the costs of removing the vehicle from such street or alley and all charges which may have accrued for the storage of the vehicle. The contents and format of such form application shall be approved metropolitan chief of police and the department of law. Notwithstanding the foregoing, if the metropolitan general sessions court or other court of competent jurisdiction, after hearing the facts and circumstances, determines that the impoundment was not lawfully authorized, the towing and storage fees shall be refunded to the person paying such fees.

F. The owner or authorized driver or operator of any immobilized vehicle under the provisions of this section may take possession of the vehicle upon paying a twenty-five dollar immobilization removal fee to the metropolitan traffic violations bureau or its contractor; provided, that if the metropolitan general sessions court or other court of competent jurisdiction, after hearing the facts and circumstances, determines that the placement of the immobilization device was not lawfully authorized, the immobilization removal fee shall be refunded to the person paying such fee. (Ord. BL2021-646 § 5, 2021; Amdt. 1 to Ord. BL2009-419 § 1, 2009; Ord. BL2009-419 § 1, 2009; Ord. 93-620 § 1, 1994; Ord. 90-1339 § 1 (27-1), 1990; prior code § 27-1-15)

12.08.160 State offenses declared municipal misdemeanors.

The state offenses cited under Tennessee Code Annotated, and which are not specifically made a violation of this Code or any other ordinance of the metropolitan government, are hereby declared to be municipal misdemeanors, the definition of such offenses to be the same as those contained in the state statutes; provided, that this section shall not apply to any offenses which are made exclusively a violation of state law. (Prior code § 27-1-8)

12.08.170 Violation of regulations adopted by traffic and parking commission—Penalty.

A. Each violation of a traffic regulation adopted by the metropolitan traffic and parking commission and filed with the metropolitan clerk shall constitute a separate offense, punishable by a fine of not less than one dollar nor more than fifty dollars.

B. All violations of subsections A. and B. of Section 12.44.040, as they pertain to parking meters, shall be punishable according to the provisions of Section 1.01.030. All violations of subsection C. of Section 12.44.040, as it pertains to overtime parking at parking meters, shall be punishable according to the provisions of Section 1.01.030.

C. Unless otherwise specified, all other parking violations shall be punishable according to the provisions of Section 1.01.030. (Ord. BL2019-1 § 2, 2019; Ord. BL2010-793 § 8, 2010; Ord. 93-584 § 7(B), 1993; Ord. 93-562 § 12(B), 1993; Ord. 92-209 §§ 1, 2, 1992; prior code § 27-1-18)

12.08.180 Citations for violations.

A. It is declared to be the intention of the metropolitan council that in the issuance of any traffic citation or any complaint or warrant for the violation of any section of this title or other metropolitan government ordinance, it shall be sufficient to cite the number of the section of this title or the ordinance number and the section violated, together with a brief statement of cause of action sufficient to place the defendant on notice of the charge he is called upon to defend against.

B. No traffic complaint or warrant shall be declared void by reason of the fact that the incorrect ordinance or section number was cited, so long as the complaint or warrant states a cause of action sufficient to place the defendant on notice of the charge he is called upon to defend against. (Prior code § 27-1-16)

12.08.190 Warrants for violations when person cited signs waiver of warrant on citation.

When any person is charged with a traffic violation in the metropolitan government area and a traffic citation is issued to such person on such violation, it shall be the duty of the metropolitan court in which such case is set for trial to try the same without the issuance or service of a warrant upon such defendant, provided the defendant has signed a waiver on such citation agreeing to come to court and waiving the issuance and service of a warrant upon him. (Prior code § 27-1-17)

12.08.200 Service of process for actions involving nonpayment of certain traffic tickets or citations.

Service of process through the use of registered or certified mail, addressee only, return receipt requested, is permitted in lieu of personal service of process in all actions of debt involving nonpayment of any ticket or citation issued for any nonmoving traffic violation. (Ord. 92-372 § 1, 1992)

12.08.210 Abandoned vehicles.

A. No person shall permit an abandoned vehicle to remain on any alley, street, highway or thoroughfare within the area of the metropolitan government.

B. "Abandoned motor vehicle," for the purposes of this chapter, means a motor vehicle that is over four years old including any contents of that vehicle, that is left unattended on public property for more than ten days, or a motor vehicle that is in an obvious state of disrepair and is left unattended on public property for more than three days.

C. "Obvious state of disrepair" means a motor vehicle exhibiting one or more of the following characteristics: inoperable under its own power, without one or more wheels or inflated tires, burned throughout, or with more than one broken window.

D. "Motor vehicle" means any self-propelled, wheeled conveyance that does not run on rails.

E. "Demolisher" means any person whose business is to convert a motor vehicle into processed scrap or scrap metal, or otherwise to wreck or dismantle motor vehicles.

F. "Public property," for the purposes of this section, shall include but not be limited to, any alley, street, highway or thoroughfare within the area of the metropolitan government.

G. The department of codes administration is authorized to investigate any alleged violations of this section and to enforce the provisions of this section.

H. When, after investigation, the department of codes administration determines that a motor vehicle may constitute an abandoned motor vehicle, the department shall attach a notice to the vehicle. The notice shall state the date and time that it was attached, the name and department of the person attaching the notice, and the location of the vehicle. The notice shall further state that the metropolitan government has determined that the vehicle may constitute an abandoned vehicle, and shall set forth the date by which the owner must remove the vehicle including any contents from public property. It shall further state that if the vehicle is not removed, it will be taken into custody and demolished unless the owner files an appeal with the director of the department of codes administration within ten days of the removal date.

I. The department of codes administration may authorize other departments or boards of the metropolitan government to attach the notice described in subsection H of this section. If the notice described in subsection H of this section is attached to the vehicle by a department or board other than the department of codes administration, the department of codes administration shall be immediately informed that the notice has been attached.

J. If a vehicle to which a notice is attached pursuant to subsection H of this section is not removed by the removal date specified in such notice, an inspector from the department of codes administration may apply to the director of codes administration or his designee for authority to sell, give away, or dispose of the vehicle including any contents to a demolisher. The application shall set out the name of the applicant, the year, make, model and serial number of the motor vehicle, if ascertainable, together with any other identifying features, and shall contain a concise statement of the facts

surrounding the abandonment. The application shall contain an affidavit by the inspector, stating that the facts alleged therein are true, and that no material fact has been withheld. If the director of the department of codes administration or his designee finds that the application is executed in proper form and establishes that the motor vehicle including any contents has been abandoned on public property, the director shall have the authority to allow for disposal of the vehicle including any contents to a demolisher after compliance with the notification procedures set forth in subsection K of this section.

K. If a vehicle, including any contents, to which a notice is attached pursuant to subsection H of this section is not removed by the removal date specified in such notice, the department of codes administration shall provide written notice to the owner of the vehicle and to all lienholders of record that the vehicle has been found to be abandoned. This notice shall be sent by registered or certified mail, return receipt requested, to the last known address of the owner of record and to all lienholders of record. The notice shall be written in plain language and shall contain the year, make, model and vehicle identification number of the motor vehicle, if ascertainable, the location of the motor vehicle, and a statement advising the owner that he or she has ten days to appeal the determination by the department of codes administration that the vehicle is abandoned or to remove the vehicle including any contents from the property, or the department of codes administration shall take the abandoned vehicle into custody to be sold or demolished. The notice shall further inform the owner and any lienholders that pursuant to the provisions of Tennessee Code Annotated Section 55-16-108, the vehicle may be disposed of to a demolisher immediately after it is taken into custody, but in the event the vehicle is not disposed of immediately, the owner or lienholder has the right to reclaim the motor vehicle after it is taken into custody but before it is sold or demolished, upon payment of all towing, preservation, storage or any other charges resulting from placing the vehicle in custody. The notice shall state that failure of the owner or lienholders to exercise their right to reclaim the vehicle including any contents shall be deemed a waiver by the owner and all lienholders of all right, title and interest in the vehicle and any contents and consent to the demolition of the vehicle or its sale at a public auction. If the owner or lienholder cannot be located through the exercise of due diligence, notice by publication shall be given pursuant to Tennessee Code Annotated Section 55-16-105(c).

L. If the owner or lienholder of an abandoned motor vehicle fails to appeal the determination that the vehicle is abandoned or fails to remove the motor vehicle within the time allowed for an appeal, the department of codes administration is authorized to take the vehicle including any contents into custody or to employ a private contractor to remove the vehicle including any contents from public property. The department is authorized to sell the vehicle at public auction or, by certificate of authority, as provided in Tennessee Code Annotated Section 55-16-108, to dispose of the motor vehicle including any contents to any demolisher for demolition, wrecking or dismantling or as otherwise provided by law. If an appeal is made pursuant to Section 12.08.220, the motor vehicle shall not be taken into custody or demolished until such time as the director of codes administration affirms the determination that the motor vehicle is abandoned.

M. Sale of the vehicle at public auction shall follow the procedures set forth in Tennessee Code Annotated Sections 55-16-106 through 107. (Ord. 2002-1128 § 1, 2002; Ord. 2002-1071 § 1, 2002; Ord. 93-620 § 2 (part), 1994)

12.08.220 Appeals.

A. Any owner or lienholder of a motor vehicle aggrieved by the determination that a vehicle is an abandoned motor vehicle may appeal to the director of codes administration or his designee within ten days of receipt of the notice provided for in Section 12.08.210(K). Failure to appeal within the specified time period shall without exception constitute a waiver of the right of appeal, and consent to the demolition of the vehicle or its sale at a public auction.

B. After a hearing, the director of codes administration shall enter an order and send a copy to the owner and lienholder, stating whether the vehicle was properly determined to be abandoned. If such order states that the vehicle is abandoned, the owner and/or lienholder will be informed of the date that the vehicle will be taken into custody if not removed. (Ord. 93-620 § 2 (part), 1994)

12.08.230 Powers supplemental.

The powers and duties conferred by Sections 12.08.210 and 12.08.220 shall be in addition and supplemental to and not in substitution of the powers and duties conferred by any other law. (Ord. 93-620 § 2 (part), 1994)

Chapter 12.12

TRAFFIC-CONTROL DEVICES

Sections:

12.12.010 Installation—Chief traffic engineer authority.
12.12.020 Turning markers—Placement authority and driver obedience.
12.12.030 Restricted turn signs—Placement authority and driver obedience.
12.12.040 Manual and specifications for traffic-control devices.
12.12.050 Obedience to traffic-control devices.
12.12.060 Devices required for enforcement of provisions.
12.12.070 Placement of devices—Presumption of legality.
12.12.080 Continuation of existing traffic-control devices.
12.12.090 Signal legend—Colors and other indications.
12.12.100 Flashing control signals.
12.12.110 Traffic lanes.
12.12.120 Lane direction control signals.
12.12.130 Crosswalks and safety zones.
12.12.140 Pedestrian control signals.
12.12.150 Play streets—Establishment authority.
12.12.160 Play streets—Driving limitations.
12.12.170 Unauthorized signs, signals or markings.
12.12.180 Interfering with or removing official traffic-control devices.
12.12.190 Traffic calming projects.

12.12.010 Installation—Chief traffic engineer authority.

The department of public works shall place and maintain traffic-control signs, signals and devices when and as required under the traffic regulations of the metropolitan government to make effective the provisions of such regulations, and may place and maintain such additional traffic-control devices as he may deem necessary to regulate traffic under the traffic regulations of the metropolitan government or under state law, or to guide or warn traffic. (Ord. 93-575 § 4(a), 1993; prior code § 27-1-50)

12.12.020 Turning markers—Placement authority and driver obedience.

A. The department of public works is authorized to place markers, buttons or signs within or adjacent to intersections, indicating the course to be traveled by vehicles turning at such intersections, and such course to be traveled as so indicated may conform to or be other than as prescribed by law or ordinances.

B. When authorized markers, buttons or other indications are placed within an intersection indicating the course to be traveled by vehicles turning thereat, no driver of a vehicle shall disobey the direction of such indications.

C. Section 12.84.020 sets out the penalty for violation of subsection B of this section. (Ord. 93-575 § 4(b), 1993; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (48), 1990; prior code § 27-1-114)

12.12.030 Restricted turn signs—Placement authority and driver obedience.

A. The department of public works is authorized to determine those intersections at which drivers of vehicles shall not make a right or left turn or U-turn, and shall place proper signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs, or they may be removed when such turns are permitted.

B. Whenever authorized signs are erected indicating that no right or left or U-turn is permitted, no driver of a vehicle shall disobey the directions of any such signs, as set out in Schedule III.*

C. Section 12.84.020 sets out the penalty for violation of subsection B of this section. (Ord. 93-575 § 4(c), 1993; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (49), 1990; prior code § 27-1-115)

* **Editor's note—**Schedule III is on file for public inspection at the offices of the metropolitan traffic and parking commission.

12.12.040 Manual and specifications for traffic-control devices.

All traffic-control signs, signals and devices shall conform to the latest edition of the Manual on Uniform Traffic Control Devices for Streets and Highways, published by the United States Department of Transportation Federal Highway Administration. All signs and signals required hereunder for a particular purpose shall, so far as practicable, be uniform as to type and location throughout the metropolitan government area. All traffic-control devices so erected and not inconsistent with the

provisions of this title shall be official traffic-control devices. (Prior code § 27-1-51)

12.12.050 Obedience to traffic-control devices.

A. The driver of any vehicle shall obey the instructions of any official traffic-control device applicable thereto, placed in accordance with the provisions of this title, unless otherwise directed by a traffic or police officer, subject to the exceptions granted the driver of an authorized emergency vehicle in this title.

B. Section 12.84.020 sets out the penalty for violation of subsection A of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (6), 1990; prior code § 27-1-52)

12.12.060 Devices required for enforcement of provisions.

A. No provision of this title for which official traffic-control devices are required shall be enforced against any alleged violators if at the time and place of the alleged violation an official device is not in proper position and sufficiently legible to be seen by an ordinarily observant person.

B. Whenever traffic-control devices are not in place, the intersection right-of-way in Section 12.16.150 shall be observed. (Prior code § 27-1-53)

12.12.070 Placement of devices—Presumption of legality.

A. Whenever official traffic-control devices are placed in position approximately conforming to the requirements of this title, such devices shall be presumed to have been so placed by the official act or direction of lawful authority, unless the contrary shall be established by competent evidence.

B. Any official traffic-control device placed pursuant to the provisions of this regulation and purporting to conform to the lawful requirements pertaining to such devices shall be presumed to comply with the requirements of this title unless the contrary shall be established by competent evidence. (Prior code § 27-1-54)

12.12.080 Continuation of existing traffic-control devices.

All official traffic-control signals, signs and markings which have heretofore been placed and are now in place on the streets of the metropolitan government, unless in conflict with the provisions of this title, are continued in full force and effect until removed, altered, changed or otherwise replaced. (Prior code § 27-1-59)

12.12.090 Signal legend—Colors and other indications.

Whenever traffic is controlled by traffic-control signals as set out in Schedule I,* exhibiting different colored lights or a colored lighted arrow, successively, and at a time or in combination, only the colors green, red and yellow shall be used, except for special pedestrian signals carrying a word legend, and such lights shall indicate and apply to drivers of vehicles and pedestrians as follows:

A. Green Indication.

1. Vehicular traffic facing a circular green signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersections, or an adjacent crosswalk, at the time such signal is exhibited.

2. Vehicular traffic facing a green arrow signal, shown alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by such arrow, or such other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk, and to other traffic lawfully using the intersection.

3. Unless otherwise directed by a pedestrian control signal, as provided in Section 12.12.140, pedestrians facing any green signal, except when the sole green signal is a turn arrow, may proceed across the roadway within any marked or unmarked crosswalk.

B. Steady Yellow Indication.

1. Vehicular traffic facing a steady yellow signal is thereby warned that the related green movement is being terminated or that a red indication will be exhibited immediately thereafter when vehicular traffic shall not enter the intersection.

2. Pedestrians facing a steady yellow signal, unless otherwise directed by a pedestrian control signal as provided in Section 12.12.140, are thereby advised that there is insufficient time to cross the roadway before a red indication is shown, and no pedestrian shall then start to cross the roadway.

C. Steady Red Indication.

1. Vehicular traffic facing a steady red signal alone shall stop at a clearly marked stop line but, if none, before entering the crosswalk on the near side of the intersection or, if none, then before entering the intersection, and shall remain standing until an indication to proceed is shown, except as provided in subsection (C)(2) below.

2. Vehicular traffic facing a steady red signal may make a right turn at an intersection after coming to a full and complete stop and yielding the right-of-way to pedestrians and cross traffic lawfully using the intersection, and such right turn shall not endanger any other traffic lawfully using the intersection. A right turn on a red signal shall be allowed at any intersection unless marked by a sign which states "no turn on red."

3. Unless otherwise directed by a pedestrian control signal, as provided in Section 12.12.140, pedestrians facing a steady red signal alone shall not enter the roadway.

D. Traffic, except pedestrians, facing a steady red arrow indication, may not enter the intersection to make the movement indicated by such arrow and, unless entering the intersection to make such other movement as is permitted by other indications shown at the same time, shall stop at a clearly marked stop line but, if none, before entering the crosswalk on the near side of the intersection or, if none, then before entering the intersection and shall remain standing until an indication to make the movement indicated by such arrow is shown.

E. Unless otherwise directed by a pedestrian signal, pedestrians facing a steady red arrow signal indication shall not enter the roadway.

F. Section 12.84.030 sets out the penalty for violation of subsections (A)(1), (A)(2), (C)(1), (C)(2) and (D) of this section. (Ord. 98-1447 § 2, 1999; Ord. 90-1339 § 1 (27-3), 1990; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (9), 1990; prior code § 27-1-60)

* **Editor's note—**Schedule I is on file for public inspection at the offices of the metropolitan traffic and parking commission.

12.12.100 Flashing control signals.

A. Whenever an illuminated flashing red or yellow signal is used in a traffic sign or signal, it shall require obedience by vehicular traffic as follows:

1. Flashing Red (Stop Signal). When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop at a clearly marked stop line but, if none, before entering the crosswalk on the near side of the intersection or, if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway, before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

2. Flashing Yellow (Caution Signal). When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

B. This section shall not apply at railroad grade crossings. Conduct of drivers of vehicles approaching railroad grade crossings shall be governed by the rules as set forth in Section 12.76.090 of this title.

C. Section 12.84.020 sets out the penalty for violation of subsections (A)(1) and (A)(2) of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (10), 1990; prior code § 27-1-62)

12.12.110 Traffic lanes.

A. The department of public works is authorized to mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary.

B. A vehicle shall be driven as nearly as practical entirely within a single lane, and shall not be moved from such lane until the driver has first ascertained that such movement can be made with safety.

C. Upon a roadway which is divided into three lanes for two-way movement of traffic, a vehicle shall not be driven in the center lane except when overtaking and passing another vehicle where the roadway ahead is clearly visible and such center lane is clear of traffic within a safe distance, or in preparation for a left turn, or where such center lane is at the time allocated exclusively to traffic moving in the direction the vehicle is proceeding and is signposted and/or signalized to give notice of such allocation.

D. Official signs may be erected directing slow-moving traffic to use a designated lane or allocating specified lanes to traffic moving in the same direction, and drivers of such vehicles shall obey the directions of every such sign.

E. Section 12.84.030 sets out the penalty for violation of subsections B, C and D of this section. (Ord. 98-1447 § 3, 1999; Ord. 93-575 § 4(d), 1993; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (8), 1990; prior code § 27-1-58)

12.12.120 Lane direction control signals.

A. When lane direction control signals are placed over the individual lanes of a street or highway, vehicular traffic may travel in any lane over which a green signal is shown, but shall not enter or travel in any lane over which a red signal is shown.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (11), 1990; prior code § 27-1-63)

12.12.130 Crosswalks and safety zones.

The department of public works is authorized:

A. To designate and maintain, by appropriate devices, marks or lines upon the surfaces of the roadway, crosswalks at intersections where, in his opinion, there is particular danger to pedestrians crossing the roadway, and at such other places as he may deem necessary;

B. To establish safety zones of such kind and character and at such places as he may deem necessary for the protection of pedestrians. (Ord. 93-575 § 4(e), 1993; prior code § 27-1-57)

12.12.140 Pedestrian control signals.

Whenever special pedestrian control signals exhibiting the words "Walk" or "Don't Walk" or "Wait" are in place, such signals shall indicate as follows:

A. "Walk." Pedestrians facing such signals may proceed across the roadway in the direction of the signal and shall be given the right-of-way by the drivers of all vehicles.

B. A pedestrian facing a flashing "Don't Walk" signal shall not start to cross the street, but any pedestrian who has partly completed his crossing during steady walk signal shall proceed to a sidewalk, or safety island.

C. "Don't Walk." No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially complete his crossing on the "Walk" signal shall proceed to a sidewalk or safety island while the "Don't Walk" signal is showing.

D. A pedestrian facing a flashing "Walk" signal will cross street in a manner to avoid vehicular conflict.

E. Diagonal Crossing. Where all pedestrian control signals show "Walk" simultaneously, diagonal crossing of the intersection by pedestrians is permissible. (Prior code § 27-1-61)

12.12.150 Play streets—Establishment authority.

The department of public works shall have authority to declare any street or part thereof as a play street, and to place appropriate signs or devices in the roadway indicating and helping to protect the area. (Ord. 93-575 § 4(f), 1993; prior code § 27-1-55)

12.12.160 Play streets—Driving limitations.

A. Whenever authorized signs are erected indicating any street or part thereof as a play street, no person shall drive a vehicle upon any such street or portion thereof except drivers of vehicles having business or whose residences are within such closed area, and then any said driver shall exercise the greatest care in driving upon any such street or portion thereof.

B. Section 12.84.020 sets out the penalty for violation of subsection A of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (7), 1990; prior code § 27-1-56)

12.12.170 Unauthorized signs, signals or markings.

A. No person shall place, maintain or display upon or in view of any highway any unauthorized sign, signal, marking or device which purports to be or is an imitation of, or attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal, and no person shall place, maintain or display any unauthorized sign, signal, marking or device over a highway.

B. No person shall place or maintain nor shall any public authority permit upon any highway any traffic sign or signal bearing thereon any commercial advertising.

C. This section shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs.

D. Every such prohibited sign, signal or marking is declared to be a public nuisance and the traffic and parking commission is empowered to remove the same or cause it to be removed without notice.

E. Provided, however, neighborhood watch signs may be erected adjacent to streets and highways and/or be placed on existing traffic sign poles, except those for stop signs and yield signs, provided they do not interfere with or block the view of any traffic-control device, any provision in this section or the metropolitan code to the contrary notwithstanding.

F. Any person violating any of these provisions shall be fined not less than fifty dollars. Each violation of this section shall be deemed a separate offense. (Ord. BL2024-512 §§ 1, 2, 2024; Amdt. 1 to Ord. 92-190, 4/21/92; Ord. 92-190 § 1, 1992; prior code § 27-1-64)

12.12.180 Interfering with or removing official traffic-control devices.

It is unlawful for any person to attempt or in fact alter, deface, injure, knock down or remove any official traffic-control device, or any railroad sign or signal, or any inscription, shield or insignia thereon or any part thereof. (Prior code § 27-1-65)

12.12.190 Traffic calming projects.

A. The Nashville Department of Transportation and Multimodal Infrastructure (NDOT) shall maintain a program for traffic calming that meets the following criteria:

1. The program shall focus on traffic calming projects that lower vehicle speed and improve street safety for all users.

2. NDOT shall coordinate with other departments including the planning department, fire department, the police department, metropolitan Nashville public schools, and the department of parks and recreation.

3. The program allows for neighborhood organizations to submit applications to identify, prioritize, and help mitigate the undesirable effects of traffic in residential neighborhoods.

4. NDOT shall select areas for traffic calming projects based on applications submitted pursuant to the traffic calming program at least once per year and/or as funding allows.

5. Applications shall be evaluated by NDOT using criteria established by NDOT and published on the metropolitan government website.

6. NDOT shall maintain a record of all applications for traffic calming projects and the neighborhoods selected for traffic calming projects. This record must be made available to the public on the metropolitan government website.

B. NDOT may authorize private construction or funding of a traffic calming project by private organizations or entities, which may include but are not limited to neighborhood organizations, homeowner associations, merchant associations, and educational or cultural institutions, provided that:

1. The private organization or entity secures private funding for the proposed traffic calming project. This private funding must comprise the entire project cost, including engineering studies, design, permitting and construction/installation. Installation must conform to NDOT standard details and minimum specifications along with the criteria laid out in this section.

2. The private organization or entity must notify NDOT in writing of its intent to fund or install a traffic calming project. This letter of intent must include contact information, the street(s) in question, and the limits of installation.

3. Upon receiving the letter of intent, NDOT engineers will conduct initial assessments to ensure traffic calming program standards, as set by the department, are met. If the traffic calming proposal is found ineligible, NDOT will provide written notification of this determination and its reasons.

4. Provided that the traffic calming program standards are met, the applicant will be required to produce the following documents prior to permitting:

a. A location map that clearly shows the neighborhood and street(s) proposed for traffic calming infrastructure.

b. A design plan set stamped by a registered engineer conforming to NDOT traffic calming infrastructure requirements.

c. A preliminary support petition containing at least ten signatures from property owners within the project scope that support installation of the traffic calming infrastructure. The petition must include a final signature block for the council member to sign in support of traffic infrastructure. The applicant must use a petition template provided by NDOT.

d. A list of all names and addresses of property owners within the project scope and evidence that these individuals and/or entities have been contacted and provided copies of the traffic calming design plans.

e. A list of materials, specifications, manufacturer, manufacturer recommendations for installation, and their respective quantities. All materials used must meet NDOT's minimum specifications and/or correspond to an item number included in a current metro contract.

5. Upon approval of all required documentation, NDOT may administer a neighborhood ballot process according to the traffic calming program standards established by the department.

6. Once documents have been approved by NDOT engineers and the ballot process, if applicable, is successful, the applicant may apply for a right-of-way permit to install the traffic calming infrastructure.

7. NDOT will assume maintenance and replacement responsibilities once the traffic calming infrastructure has passed inspection.

8. This Subsection B shall apply only to private construction of traffic calming infrastructure initiated by private organizations or entities and shall not apply to private funding of traffic calming through any other means, including as part of on-site or off-site traffic calming improvements required or recommended by NDOT.

C. NDOT may authorize the private construction or funding of a traffic calming project by other means provided that:

1. One or more of the following has occurred:

a. NDOT requires on-site or off-site traffic calming improvement(s) on adjacent streets or on existing or new street connections as part of permitting for a project that is being reviewed under existing entitlements;

b. A traffic impact study recommends the on-site or off-site traffic calming improvement(s) as part of a rezoning or lot subdivision for residential developments pursuant to Section 17.20.140;

c. NDOT recommends to the planning commission or planning department conditions for traffic calming improvement(s) within projects or on existing or new street connections for lot subdivisions that do not require a traffic impact study pursuant to Section 17.20.140; or

d. NDOT recommends that the planning commission and/or the metropolitan council condition the provision of on-site or off-site traffic calming improvement(s) as part of a zone change or PUD revision approval.

2. Upon notification of one of the events listed in Subsection C.1, NDOT engineers will conduct initial assessments to ensure that traffic calming program standards as set by the department are met. If the traffic calming proposal is found ineligible, NDOT will provide written notification of this determination and its reasons.

3. Provided that the traffic calming program standards are met, the applicant will be required to produce the following documents prior to permitting:

a. A location map that clearly shows the neighborhood and street(s) proposed for traffic calming infrastructure.

b. A design plan set stamped by a registered engineer conforming to NDOT traffic calming infrastructure requirements.

c. A list of materials, specifications, manufacturer, manufacturer recommendations for installation, and their respective quantities. Materials must meet NDOT's minimum specifications and/or correspond to an item number included in a current metro contract.

4. Once the proposed project has been approved by NDOT engineers, the applicant may apply for a right-of-way permit to install the traffic calming infrastructure.

5. NDOT will assume maintenance and replacement responsibilities once the traffic calming infrastructure has passed inspection.

D. By August 1 of each year, NDOT shall submit a report to the metropolitan council of the applications received for the traffic calming program, the ranking of each application, and the metrics used to determine the ranking of the applications. This report should also include the status of projects currently in process and completed projects, the date of application for these projects, the date of completion, total cost, and any other projects implemented pursuant to subsections B and C above. (Ord. BL2022-1572 § 1, 2023; Amdt. 1 with Ord. BL2004-374 § 1, 2004)

Chapter 12.16

RULES OF THE ROAD

Sections:

12.16.010	**Driving on right side of roadway required—Exceptions.**
12.16.020	**Overtaking a vehicle on the left.**
12.16.030	**Passing vehicles proceeding in opposite directions—Narrow roadways.**
12.16.040	**Passing on right permitted when.**
12.16.050	**Overtaking on the left.**
12.16.060	**Driving on left side of roadway prohibited—Exceptions.**
12.16.070	**Driving on divided highways.**
12.16.080	**Controlled-access roadways—Entrance and exit restrictions.**
12.16.090	**Controlled-access roadways—Use restrictions and traffic-control devices.**
12.16.100	**No-passing zones.**
12.16.110	**Turning movements and required turning signals.**
12.16.120	**Turn signal procedures.**
12.16.130	**Hand and arm signals.**
12.16.140	**Position of vehicles when turning at intersections.**
12.16.150	**Yield right-of-way—Vehicles at intersections.**
12.16.160	**Yield right-of-way—Vehicles turning to the left.**
12.16.170	**Turning to go in opposite direction.**
12.16.180	**School buses—Overtaking and passing restrictions.**
12.16.190	**Starting parked vehicles.**
12.16.200	**Following too closely.**
12.16.210	**Cutting through private property prohibited.**
12.16.220	**Driving on streets under construction prohibited.**
12.16.230	**Driving through safety zones prohibited.**

12.16.010 Driving on right side of roadway required—Exceptions.

A. Upon all roadways of sufficient width, a vehicle shall be driven upon the right half of the roadway except as follows:

1. When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movement;

2. When an obstruction exists making it necessary to drive to the left of the center of the highway; provided, any person doing so shall yield the right-of-way to all vehicles traveling in the proper direction upon the unobstructed portion of the highway within such distance as to constitute an immediate hazard;

3. Upon a roadway divided into three marked lanes for traffic under the rules applicable thereon; or

4. Upon a roadway restricted to one-way traffic.

B. Upon all roadways, any vehicle proceeding at less than the normal speed of traffic at the time and place under the conditions then existing shall be driven in the right-hand lane then available for traffic, or as close as practicable to the right-hand curb or edge of the roadway, except when overtaking and passing another vehicle proceeding in the same direction, or when preparing for a left turn at an intersection, or into a private road or driveway.

C. Section 12.84.020 sets out the penalty for violation this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (30), 1990; prior code § 27-1-95)

12.16.020 Overtaking a vehicle on the left.

A. The following rules shall govern the overtaking and passing of vehicles proceeding in the same direction, subject to those limitations, exceptions and special rules hereinafter stated:

1. The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle;

2. Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle on audible signal, and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

B. Section 12.84.020 sets out the penalty for violation of this section.

C. The driver of a vehicle overtaking a bicycle proceeding in the same direction shall pass to the left thereof at a safe distance, but not less than three feet clearance, and shall maintain clearance until safely past the overtaken bicycle. (Ord. 99-1815 § 14, 1999; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (33), 1990; prior code § 27-1-98)

12.16.030 Passing vehicles proceeding in opposite directions—Narrow roadways.

A. Drivers of vehicles proceeding in opposite directions shall pass each other to the right, and upon roadways having width for not more than one line of traffic in each direction, each driver shall give to the other at least one- half of the main traveled portion of the roadway as nearly as possible.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (32), 1990; prior code § 27-1-97)

12.16.040 Passing on right permitted when.

A. The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

1. When the vehicle overtaken is making or about to make a left turn;

2. Upon a roadway with unobstructed pavement of sufficient width for two or more lines of vehicles moving lawfully in the direction being travelled by the overtaking vehicle.

B. The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting such movement in safety. Such movement shall not be made by driving off the roadway.

C. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (34), 1990; prior code § 27-1-99)

12.16.050 Overtaking on the left.

A. No vehicle shall be driven to the left side of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction unless authorized by provisions of this chapter and unless such left side is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without interfering with the operation of any vehicle approaching from the opposite direction or any vehicle overtaken. In every event, the overtaking vehicle must return to an authorized lane of travel as soon as practicable and in the event the passing movement involves the use of a lane authorized for vehicles approaching from the opposite direction, before coming within one hundred feet of any approaching vehicle.

B. Section 12.84.020 sets out the penalty for violation of this section. (Ord. 90-1339 § 1 (27-4), 1990; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (35), 1990; prior code § 27-1-100)

12.16.060 Driving on left side of roadway prohibited—Exceptions.

A. No vehicle shall be driven on the left side of the roadway under the following conditions:

1. When approaching or upon the crest of a grade or curve in the highway where the driver's view is obstructed within such distance as to create a hazard in the event another vehicle might approach from the opposite direction;

2. When approaching within one hundred feet of or traversing any intersection or railroad grade crossing;

3. When the view is obstructed upon approaching within one hundred feet of any bridge, viaduct or tunnel.

B. The foregoing limitations shall not apply upon a one-way roadway, nor under the conditions described in subsection (A)(2) of Section 12.16.040, nor to the driver of a vehicle turning left into or from an alley, private road or driveway.

C. Section 12.84.020 sets out the penalty for violation of subsection A of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (36), 1990; prior code § 27-1-101)

12.16.070 Driving on divided highways.

A. Whenever any highway has been divided into two or more roadways by leaving an intervening space or by a physical barrier or clearly indicated dividing section so constructed as to impede vehicular traffic, every vehicle shall be driven only upon the right-hand roadway unless directed or permitted to use another roadway by official traffic-control devices or police officers. No vehicle shall be driven over, across or within any such dividing space, barrier or section, except through an opening in such physical barrier or dividing section or space, or at a cross-over or intersection as established, unless specifically prohibited by traffic and parking commission.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (39), 1990; prior code § 27-1-104)

12.16.080 Controlled-access roadways—Entrance and exit restrictions.

A. No person shall drive a vehicle onto or from any controlled-access roadway except at such entrances and exits as are established by public authority.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (23), 1990; prior code § 27-1-88)

12.16.090 Controlled-access roadways—Use restrictions and traffic-control devices.

A. The traffic and parking commission, by resolution, may regulate or prohibit the use of any controlled-access roadway or highway within Metropolitan Nashville-Davidson County, by any class or kind of traffic which is found to be incompatible with the normal and safe movement of traffic.

B. The traffic and parking commission adopting any such prohibition shall erect and maintain official traffic-control devices on the controlled-access highway on which such prohibitions are applicable, and when in place no person shall disobey the restrictions stated on such devices.

C. Section 12.84.020 sets out the penalty for violation of subsection B of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (24), 1990; prior code § 27-1-89)

12.16.100 No-passing zones.

A. The department of public works is authorized to determine those portions of any highway under their respective jurisdictions where overtaking and passing or driving on the left side of the roadway would be especially hazardous and may by appropriate signs or marking on the roadway indicate the beginning and end of such zones, and when such signs or markings are in place and clearly visible to an ordinarily observant person every driver of a vehicle shall obey the directions thereof.

B. This section does not apply under the conditions described in subsection (A)(2) of Section 12.16.040, nor to the driver of a vehicle turning left into or from an alley, private road or driveway.

C. Section 12.84.020 sets out the penalty for violation of subsection A of this section. (Ord. 93-575 § 4(g), 1993; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (37), 1990; prior code § 27-1-102)

12.16.110 Turning movements and required turning signals.

A. No person shall turn a vehicle at an intersection unless the vehicle is in proper position upon the roadway as required by Section 12.16.140, or turn a vehicle to enter a private road or driveway, or otherwise turn a vehicle from a direct course, or move right or left upon a roadway unless and until such movement can be made with reasonable safety. No person shall so turn any vehicle without giving an appropriate signal in the manner hereinafter provided. When turning a vehicle at an intersection or to enter a private road or driveway, a person shall yield the right-of-way to bicycles traveling lawfully within a bicycle lane, shoulder, sidewalk or on the roadway.

B. A signal of intention to turn right or left when required shall be given continuously during not less than the last fifty feet traveled by the vehicle before turning.

C. No person shall stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal in the manner provided herein to the driver of any vehicle immediately to the rear when there is opportunity to give such signal.

D. The signals provided for in subsection B of Section 12.16.120 shall be used to indicate an intention to turn, change lanes or start from a parked position, and shall not be flashed on one side only on a parked or disabled vehicle, or flashed as a courtesy or "do pass" signal to operators of other vehicles approaching from the rear.

E. Section 12.84.020 sets out the penalty for violation of subsections A through D of this section. (Ord. 99-1815 § 15, 1999; Ord. 90-1339 § 1 (27-5), (27-6), 1990; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (41), 1990; prior code § 27-1-106)

12.16.120 Turn signal procedures.

A. Any stop or turn signal, when required in this title, shall be given either by means of the hand and arm or by signal lamps, except as otherwise provided in subsection B of this section.

B. Any motor vehicle in use on a highway shall be equipped with and required signal shall be given by signal lamps when the distance from the center of the top of the steering post to the left outside limit of the body, cab or load of such motor vehicle exceeds twenty-four inches, or when the distance from the center of the top of the steering post to the rear limit of the body or load thereof exceeds fourteen feet. The latter measurement shall apply to any single vehicle, also to any combination of vehicles.

C. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (42), 1990; prior code § 27-1-107)

12.16.130 Hand and arm signals.

A. All signals required in this title given by hand and arm shall be given from the left side of the vehicle in the following manner, and such signals shall indicate as follows:

1. Left Turn. Hand and arm extended horizontally;
2. Right Turn. Hand and arm extended upward;
3. Stop or Decrease Speed. Hand and arm extended downward.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (43), 1990; prior code § 27-1-108)

12.16.140 Position of vehicles when turning at intersections.

A. The driver of a vehicle intending to turn at an intersection shall do so as follows:

1. Right Turns. Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway.

2. Left Turns. The driver of a vehicle intending to turn left at any intersection shall approach the intersection in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle and, after entering the intersection, the left turn shall be made so as to leave the intersection in a lane lawfully available to traffic moving in such direction upon the roadway being entered. Whenever practicable, the left turn shall be made in that portion of the intersection to the left of the center of the intersection.

3. Traffic-Control Devices. The traffic and parking commission may cause official traffic-control devices to be placed within or adjacent to intersections and thereby require and direct that a different course from that specified in this section be traveled by vehicles turning at an intersection, and when such devices are so placed no driver of a vehicle shall turn a vehicle at an intersection other than as directed and required by such devices.

B. Section 12.84.020 sets out the penalty for violation of subsections A through C of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (46), 1990; prior code § 27-1-111)

12.16.150 Yield right-of-way—Vehicles at intersections.

A. When two vehicles approach or enter an intersection from different highways at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on the right.

B. The right-of-way rule declared in subsection A of this section is modified by the control of a police officer or traffic-control devices and as otherwise stated in this title.

C. Section 12.84.020 sets out the penalty for violation of subsection A of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (44), 1990; prior code § 27-1-109)

12.16.160 Yield right-of-way—Vehicles turning to the left.

A. The driver of a vehicle intending to turn to the left within an intersection, or into an alley, private road or driveway, shall yield the right-of-way to any vehicle approaching from the opposite direction which is within the intersection or so close thereto as to constitute an immediate hazard.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (45), 1990; prior code § 27-1-110)

12.16.170 Turning to go in opposite direction.

A. The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction unless such movement can be made in safety and without interfering with other traffic.

B. No vehicle shall be turned so as to proceed in the opposite direction upon any curve, or upon the approach to or near the crest of a grade, where such vehicle cannot be seen by the driver of any other vehicle approaching from either direction within five hundred feet.

C. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (50), 1990; prior code § 27-1-116)

12.16.180 School buses—Overtaking and passing restrictions.

A. The driver of a vehicle meeting or overtaking from either direction any school bus stopped on the highway shall stop before reaching such school bus when there is in operation on said school bus the flashing red lights specified in Tennessee Statute Annotated and said driver shall not proceed until such school bus resumes motion or he is signaled by the school bus driver to proceed or the flashing red lights are no longer actuated.

B. Every school bus shall be equipped with red visual signals meeting the requirements of Tennessee Statute Annotated of subsection A of this section, which may be actuated by the driver of said school bus whenever but only whenever such vehicle is stopped on the highway for the purpose of receiving or discharging school children. A school bus driver shall not actuate said special visual signals:

1. In business districts and on urban arterial streets designated by the traffic and parking commission;

2. At intersections or other places where traffic is controlled by traffic-control signals or police officers; or

3. In designated school-bus loading areas where the bus is entirely off the roadway.

C. Every school bus shall bear upon the front and rear thereof plainly visible signs containing the words "SCHOOL BUS" in letters not less than eight inches in height. When a school bus is being operated upon a highway for purposes other than the actual transportation of children either to or from school all markings thereon indicating "school bus" shall be covered or concealed.

D. Violation—Penalty.

1. For any person or persons electing to plead guilty and pay a fine for the violation of this section or subsection prior to the court date, the fine for the conviction of a first violation of this section within a twelve-month period shall be fifty dollars, and the fine for the conviction of a second violation within twelve months shall be fifty dollars.

2. The fine for a conviction of a third violation within twelve months shall be set by the court in accordance with Section 1.01.030. The court may use the aforementioned schedule as a guide in setting fines in accordance with Section 1.01.030 for any person or persons who appear in court to contest any violation of this section or subsection. (Ord. 95-1329 § 2 (part), 1995; § 3 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 3 (part), 1990; prior code § 27-1-112)

12.16.190 Starting parked vehicles.

A. No person shall start a vehicle which is stopped, standing or parked unless and until such movement can be made with reasonable safety.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (40), 1990; prior code § 27-1-105)

12.16.200 Following too closely.

A. The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicles and the traffic upon and the condition of the highway.

B. The driver of any motor vehicle drawing another vehicle, when traveling upon a roadway outside of a business or residence district and which is following another motor truck or motor vehicle drawing another vehicle shall, whenever conditions permit, leave sufficient space so that an overtaking vehicle may enter and occupy such space without danger, except that this shall not prevent a motor truck or motor vehicle drawing another vehicle from overtaking and passing any like vehicle or other vehicle.

C. Motor vehicles being driven upon any roadway outside of a business or residence district in a caravan or motorcade, whether or not towing other vehicles, shall be so operated as to allow sufficient space between each such vehicle or combination of vehicles so as to enable any other vehicle to enter and occupy such space without danger. This provision shall not apply to funeral processions.

D. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (38), 1990; prior code § 27-1-103)

12.16.210 Cutting through private property prohibited.

A. The driver or operator of any vehicle shall not drive upon or through any private property or upon or though any driveway not a part of the street or roadway for the purpose of avoiding obedience to any traffic regulation or ordinance of the metropolitan government.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (52), 1990; prior code § 27-1-118)

12.16.220 Driving on streets under construction prohibited.

A. It is unlawful for any person or any event thereof, to drive or cause to be driven, any vehicle upon, over or across any freshly oiled street or pavement in the city which is in the process of construction or is being repaired, and which has not been opened to the use of the public, except an authorized emergency vehicle while engaged in emergency duty, nor shall drive such vehicle upon any street or highway which is officially closed to traffic and which is plainly indicated as such by officially erected signs, barricades or other traffic-control devices.

B. Section 12.84.020 sets out the penalty for violation of subsection A of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (28), 1990; prior code § 27-1-93)

12.16.230 Driving through safety zones prohibited.

A. No vehicle shall at any time be driven through or within a safety zone.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (47), 1990; prior code § 27-1-113)

Chapter 12.20

SPEED RESTRICTIONS

Sections:

12.20.010	**Basic rule—Reasonable speed under the conditions.**
12.20.020	**Maximum speed limits.**
12.20.030	**Special speed zones.**
12.20.040	**Speed limitations for certain vehicles and conditions.**
12.20.050	**Minimum speed regulation.**
12.20.060	**Alleys.**
12.20.070	**School zone restrictions.**
12.20.080	**Construction and demolition site restrictions.**

12.20.010 Basic rule—Reasonable speed under the conditions.

A. No person shall drive a vehicle at a speed greater than is reasonable and prudent under the conditions and having regard to the actual and potential hazards then existing. Consistent with the foregoing, every person shall drive at a safe and appropriate speed when approaching and crossing an intersection or railroad grade crossing, when approaching and going around a curve, when approaching a hill crest, when traveling upon any narrow or winding roadway, and when special hazards exist with respect to pedestrians or other traffic or by reason of weather or highway conditions in compliance with Sections 12.20.030 and 12.20.040 of this title.

B. Section 12.84.030 sets out the penalty for violation of subsection A of this section. (Ord. 98-1447 § 4, 1999; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (1), 1990; prior code § 27-1-30)

12.20.020 Maximum speed limits.

In the absence of a posted speed limit sign duly authorized by the traffic and parking commission, and except as provided by Sections 12.20.030, 12.20.040 and 12.20.070, or any other section of this title, no person shall exceed the maximum lawful speed stated hereunder, provided that this section shall not apply to the Interstate Highway System, which is regulated under Tennessee Code Annotated, Section 55-8-152:

A. Twenty-five miles per hour within the Urban Services District and General Services District urban and suburban neighborhood local street network;

B. Fifty-five miles per hour in other locations;

C. Section 12.84.030 sets out the penalty for violation of subsections A, B, and C of this section. (Ord. BL2023-1887 §§ 3, 4, 2023; Amdt. B to Ord. BL2021-594 § 3, 2021; Ord. BL2021-594 § 3, 2021; Ord. 98-1447 § 5, 1999; Ord. 90-1339, § 1 (27-2), 1990; prior code § 27-1-31)

12.20.030 Special speed zones.

A. Whenever the traffic and parking commission shall determine upon the basis of an engineering and traffic investigation that any maximum speed hereinbefore set forth is greater or less than is reasonable or safe under the conditions found to exist at any intersection or other place or upon any part of the metropolitan highway system, the commission may determine and declare a reasonable and safe maximum or minimum limit thereat, which shall be effective when appropriate signs giving notice thereof are erected. Such a maximum or minimum speed limit may be declared to be effective at all times or at such times as are indicated upon the said signs; and differing limits may be established for different times of day, different types of vehicles, varying weather conditions, and other factors bearing on safe speeds. It is unlawful for any person to drive a vehicle at a speed in excess of any speed so declared in this regulation when signs are in place giving notice thereof as set out in Schedule II.*

B. Section 12.84.030 sets out the penalty for violation of subsection A of this section. (Ord. 96-245 § 1, 1996; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (3), 1990; prior code § 27-1-32)

* **Editor's note—**Schedule II is on file for public inspection at the offices of the metropolitan traffic and parking commission.

12.20.040 Speed limitations for certain vehicles and conditions.

A. No person shall drive any vehicle equipped with solid rubber tires at a speed greater than a maximum of ten miles per hour.

B. The traffic and parking commission or public works department may conduct an investigation of any bridge or other elevated structure constituting a part of a highway, and if it shall thereupon find that such structure cannot with safety to itself withstand vehicles traveling at the speed otherwise permissible under this title, the commission shall determine and declare the maximum speed of vehicles which such structure can safely withstand, and shall cause or permit suitable signs stating such maximum speed to be erected and maintained before each end of such structure.

C. Section 12.84.020 sets out the penalty for violation of subsection A of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (4), 1990; prior code § 27-1-33)

12.20.050 Minimum speed regulation.

Whenever the traffic and parking commission shall determine on the basis of an engineering and traffic investigation that slow speeds on any highway or part of a highway impede the normal and reasonable movement of traffic, the commission may determine and declare a minimum speed limit below which no person shall drive a vehicle except when necessary for safe operation or in compliance with law, and that limit shall be effective when posted upon appropriate fixed or variable signs. (Prior code § 27-1-36)

12.20.060 Alleys.

A. The maximum speed limit in alleys shall be ten miles per hour.

B. Section 12.84.020 sets out the penalty for violation of subsection A of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (5), 1990; prior code § 27-1-34)

12.20.070 School zone restrictions.

A. No driver of a vehicle shall, upon approaching any school zone while children are going to or from school, drive through such zone in excess of fifteen miles per hour. When a school patrol is on duty at any crosswalk approach to a school for the purpose of protecting school pedestrians, and shall give a clearly recognizable signal to approaching traffic, all such approaching traffic shall come to a full stop before entering the crosswalk and shall proceed only when all school pedestrians in the street have safely reached the sidewalk.

B. Section 12.84.030 sets out the penalty for violation of subsection A of this section. (Ord. 98-1447 § 6, 1999; Ord. 95-1329 § 2 (part), 1995; § 2 of Amdt. 2 to Ord. 90-1255, 7/17/90; § 1 of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 2, 1990; prior code § 27-1-35)

12.20.080 Construction and demolition site restrictions.

A. In any construction or demolition site which constitutes a major project as defined under Section 16.28.235.A. of the Metropolitan Code of Laws, and which is located within one hundred linear feet of a public road or street, no driver of a vehicle shall drive through such site in excess of fifteen miles per hour.

B. Section 12.84.030 sets out the penalty for violation of subsection A. of this section. (Ord. BL2016-223 § 1, 2016)

Chapter 12.24

THROUGH STREETS AND STOP INTERSECTIONS

Sections:

12.24.010	**Through streets—Schedule V.**
12.24.020	**Sign requirements.**
12.24.030	**Other intersections where stopping or yielding is required.**
12.24.040	**Procedures for vehicles entering stop or yield intersections.**
12.24.050	**Vehicles emerging from alley, driveway or building.**
12.24.060	**Obstructing intersections—Entry restrictions.**

12.24.010 Through streets—Schedule V.

Those streets and parts of streets described in Schedule V* are hereby expressly declared to be through streets. (Prior code § 27-1-180)

*** Editor's note—**Schedule V is on file for public inspection at the offices of the metropolitan traffic and parking commission.

12.24.020 Sign requirements.

Whenever any regulation or ordinance designates and describes a through street, it shall be the duty of the department of public works to place and maintain a stop sign or, on the basis of an engineering and traffic investigation at any intersection, a yield sign, on each street intersecting such through street, unless traffic at any such intersection is controlled at all times by traffic-control signals; provided, that at the intersection of two such through streets or at the intersection of a through street and a heavy traffic street not so designated, stop signs shall be erected at the approaches of either of such streets as may be determined by the department of public works upon the basis of an engineering and traffic study. (Ord. 93-575 § 4(h), 1993; prior code § 27-1-181)

12.24.030 Other intersections where stopping or yielding is required.

The department of public works is authorized to determine and designate intersections as set out in Schedule VI* where particular hazard exists upon other than through streets and to determine:

A. Whether vehicles shall stop at one or more entrances to any such intersection, in which event he shall cause to be erected a stop sign at every such place where a stop is required; or

B. Whether vehicles shall yield the right-of-way to vehicles on a different street at such intersection as prescribed in Section 12.24.010, in which event he shall cause to be erected a yield sign at every place where obedience thereto is required. (Ord. 93-575 § 4(i), 1993; prior code § 27-1-182)

*** Editor's note—**Schedule VI is on file for public inspection at the offices of the metropolitan traffic and parking commission.

12.24.040 Procedures for vehicles entering stop or yield intersections.

A. Preferential right-of-way at an intersection may be indicated by stop signs or yield signs as authorized in Section 12.24.020 of this chapter.

B. Except when directed to proceed by a police officer or traffic-control signal, every driver of a vehicle approaching a stop intersection indicated by a stop sign shall stop at a clearly marked stop line but, if none, before entering the crosswalk on the near side of the intersection or, if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering the intersection. After having stopped, the driver shall yield the right-of-way to any vehicle which has entered the intersection from another highway or which is approaching so closely on the such highway as to constitute an immediate hazard during the time when such driver is moving across or within the intersection.

C. The driver of a vehicle approaching a yield sign shall, in obedience to such sign, slow down to a speed reasonable for the existing conditions and, if required for safety to stop, shall stop at a clearly marked stop line but, if none, before entering the crosswalk on the near side of the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway. After slowing or stopping, the driver shall yield the right-of-way to any vehicle in the intersection or approaching on another highway so closely as to constitute an immediate hazard during the time such driver is moving across or within the intersection. Provided, however, that if such a driver is involved in a collision with a vehicle in the intersection, after driving past a yield sign, such collision shall be deemed prima facie evidence of his failure to yield right-of-way.

D. Section 12.84.030 sets out the penalty for violation of subsections B and C of this section. (Ord. 98-1447 § 7, 1999; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (59), 1990; prior code § 27-1-183)

12.24.050 Vehicles emerging from alley, driveway or building.

A. The driver of a vehicle emerging from an alley, driveway or building shall stop such vehicle immediately prior to driving onto a sidewalk area extending across

any alleyway or driveway, and shall yield the right-of-way to any pedestrian as may be necessary to avoid collision, and upon entering the roadway, shall yield the right-of-way to all vehicles approaching on such roadway.

B. Section 12.84.020 sets out the penalty for violation of subsection A of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (60), 1990; prior code § 27-1-184)

12.24.060 Obstructing intersections—Entry restrictions.

A. No driver shall enter an intersection or a marked crosswalk, or drive onto any railroad grade crossing, unless there is sufficient space on the other side of the intersection, crosswalk or railroad grade crossing to accommodate the vehicle he is operating without obstructing the passage of other vehicles, pedestrians, or railroad trains.

B. Section 12.84.020 sets out the penalty for violation of subsection A of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (61), 1990; prior code § 27-1-185)

Chapter 12.28

ONE-WAY STREETS AND ALLEYS

Sections:

12.28.010	**One-way streets and alleys—Schedule IV.**
12.28.020	**Signs to regulate direction of traffic.**
12.28.030	**Changes of traffic direction at certain locations or during certain hours—Left-turn lanes.**

12.28.010 One-way streets and alleys—Schedule IV.

Upon those streets and parts of streets and in those alleys described in Schedule IV,* vehicular traffic shall move only in the indicated direction. (Prior code § 27-1-230)

* **Editor's note—**Schedule IV is on file for public inspection at the offices of the metropolitan traffic and parking commission.

12.28.020 Signs to regulate direction of traffic.

Whenever any regulation of the traffic and parking commission designates any one-way street or alley, the department of public works shall place and maintain signs giving notice thereof, and no such regulation shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement of traffic in the opposite direction is prohibited. (Ord. 93-575 § 4(j), 1993; prior code § 27-1-231)

12.28.030 Changes of traffic direction at certain locations or during certain hours—Left-turn lanes.

A. The department of public works is authorized to determine and designate streets, parts of streets or specified lanes thereon upon which vehicular traffic shall proceed in one direction during one period and the opposite direction during another period of the day and shall place and maintain appropriate markings, signs, barriers or other devices to give notice thereof. The department of public works may erect signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the centerline of the roadway.

B. The department of public works is authorized to determine and designate upon a two-way roadway an additional lane in the center of the street for vehicles turning left, from both directions. Where such additional lanes have been provided by official traffic-control signs and markings, no vehicle shall turn left from any other lane. A vehicle shall not be driven in this lane for the purpose of overtaking or passing another vehicle proceeding in the same direction, and at no time farther than the next intersection.

C. It is unlawful for any person to operate any vehicle in violation of such markings, signs, barriers or other devices so placed in accordance with this section.

D. Section 12.84.020 sets out the penalty for violation of subsection C of this section. (Ord. 93-575 § 4(k), 1993; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (65), 1990; prior code § 27-1-232)

Chapter 12.32

EQUIPMENT

Sections:

12.32.010	**Horns and warning devices.**
12.32.020	**Brake equipment.**
12.32.030	**Lighted lamps and illuminating devices required when.**
12.32.040	**Projecting loads—Lamps or flags required when.**
12.32.050	**Reserved.**
12.32.060	**Mud flaps for heavy vehicles.**
12.32.070	**Red lights—Unauthorized use prohibited.**
12.32.080	**Blue lights—Unauthorized use prohibited.**
12.32.090	**Equipment and other nonmoving violations—Nullification procedures.**

12.32.010 Horns and warning devices.

A. Every motor vehicle, when operated upon a highway, shall be equipped with a horn in good working order and capable of emitting sound audible under normal conditions from a distance of not less than two hundred feet, but no horn or other warning device shall emit an unreasonably loud or harsh sound or a whistle. The driver of a motor vehicle shall, when reasonably necessary to insure safe operation, give audible warning with his horn, but shall not otherwise use such horn when upon a highway.

B. No vehicle shall be equipped with nor shall any person use upon a vehicle any siren, whistle or bell, except as otherwise permitted in this section.

C. It is permissible but not required that any commercial vehicle be equipped with a theft alarm signal device which is so arranged that it cannot be used by the driver as an ordinary warning signal.

D. Every authorized emergency vehicle shall be equipped with a siren, whistle or bell, capable of emitting sound audible under normal conditions from a distance of not less than five hundred feet, and of a type approved by the traffic and parking commission and/or the Tennessee Statute Annotated, but such siren shall not be used except when such vehicle is operated in response to an emergency call or in the immediate pursuit of an actual or suspected violator of the law, in which said latter events the driver of such vehicle shall sound the siren, whistle or bell, when reasonably necessary to warn pedestrians and other drivers of the approach thereof.

E. Section 12.84.010 sets out the penalty for violation of this section. (§ 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part) of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 4 (3), 1990; prior code § 27-1-280)

12.32.020 Brake equipment.

A. It is unlawful for any person to operate a motor vehicle upon the streets, roads or thoroughfares within the metropolitan government area unless such vehicle shall be equipped with brakes maintained in good working order and adequate to control the movement of and to stop and hold such vehicle. With respect to the brake equipment required and the performance ability of such brakes, the compliance with Tennessee Code Annotated shall be in compliance with this section.

B. Section 12.84.010 sets out the penalty for violation of this section. (§ 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part) of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 4 (8), 1990; prior code § 27-1-286)

12.32.030 Lighted lamps and illuminating devices required when.

A. Every vehicle upon a highway within this metropolitan government at any time from a half-hour after sunset to a half-hour before sunrise, and at any other time when, due to insufficient light or unfavorable atmospheric conditions, persons and vehicles on the highways are not clearly discernible at a distance of one thousand feet ahead, shall display lighted lamps and illuminating devices as hereinafter respectively required for different classes of vehicles, subject to exceptions with respect to parked vehicles; and further, that stop lights, turn signals and other signalling devices shall be lighted as prescribed by Tennessee Statute Annotated for the use of such devices.

B. Section 12.84.010 sets out the penalty for violation of this section. (§ 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part) of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 4 (5), 1990; prior code § 27-1-282)

12.32.040 Projecting loads—Lamps or flags required when.

A. Whenever the load upon any vehicle extends to the rear four feet or more beyond the bed or body of such vehicle, there shall be displayed at the extreme rear end of the load, at the times specified in Section 12.32.030, two red lamps visible from a distance of at least five hundred feet to the rear, two red reflectors visible at night from all distances within six hundred feet to one hundred feet to the rear when directly in front of lawful

lower beams of headlamps, and located so as to indicate maximum width, and on each side one red lamp visible from a distance of at least five hundred feet to the side and located so as to indicate maximum overhang. There shall be displayed at all other times on any vehicle having a load which extends beyond its sides or more than four feet beyond its rear, red flags, not less than twelve inches square, marking the extremities of such load, at each point where a lamp would otherwise be required by this section or any other regulations set out in Tennessee State Code Annotated.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (76), 1990; prior code § 27-1-285)

12.32.050 Reserved.

Editor's note—Ord. BL2019-1631, § 1, adopted August 20, 2019, repealed § 12.32.050, which pertained to mufflers—Prevention of noise, fumes and smoke and derived from § 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part) of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 4 (4), 1990; prior code § 27-1-281. The user's attention is directed to Title 9, Noise and Amplified Sound.

12.32.060 Mud flaps for heavy vehicles.

A. For purposes of this section, the term "heavy vehicle" shall be defined as a vehicle the rear axle of which contains four or more wheels.

B. All heavy vehicles using the public thoroughfares of the metropolitan government shall possess mud flaps or contrivances similar in purpose thereto, for the purpose of preventing the backward propulsion of loose matter by the rear tires of such vehicles.

C. Section 12.84.010 sets out the penalty for violation of this section. (§ 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part) of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 4 (9), 1990; prior code § 27-1-287)

12.32.070 Red lights—Unauthorized use prohibited.

A. No vehicle, except emergency vehicles of fire and ambulances, or emergency repair vehicles, including hazardous materials response vehicles, shall be equipped with any light that displays a red light to the front of such vehicle.

B. Section 12.84.010 sets out the penalty for violation of this section. (Ord. 99-1777 § 2, 1999; § 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part) of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 4 (6), 1990; prior code § 27-1-283)

12.32.080 Blue lights—Unauthorized use prohibited.

A. No vehicle, except vehicles of the metropolitan police department or highway patrol vehicles, shall be equipped with any light that displays a blue light to the front of such vehicle.

B. Section 12.84.010 sets out the penalty for violation of this section. (§ 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part) of Amdt. 1 to 90-1255, 6/19/90; Ord. 90-1255 § 4 (7), 1990; prior code § 27-1-284)

12.32.090 Equipment and other nonmoving violations—Nullification procedures.

A. The circuit court clerk is authorized to establish a nullification program in the traffic violations bureau for eligible equipment and non-moving violations. Violators can appear at the traffic violations bureau and present proof that the defect has been corrected within forty-five days from the date of the violation. There shall be a fee of twelve dollars whenever a non-moving traffic violation is nullified by the traffic violations bureau or is dismissed by the general sessions court after correction of the violation. This fee may be waived by the general sessions court judges in cases of financial hardship.

B. Violations of T.C.A. 55-12-139 (Financial Responsibility Law) charged as a metropolitan violations pursuant to Section 12.08.160 will be dismissed as follows:

1. On or before the court date, the person so charged may submit evidence of financial responsibility at the time of the violation. If it is the person's first violation of this section and the court is satisfied that the financial responsibility was in effect at the time of the violation, the charge of failure to provide evidence of financial responsibility shall be dismissed.

2. Upon the person's second or subsequent violation of this section, if the court is satisfied that the financial responsibility was in effect at the time of the violation, the charge of failure to provide evidence of financial responsibility may be dismissed. Any charge that is dismissed pursuant to this subsection B. shall be dismissed without costs to the defendant and no litigation tax shall be due or collected, notwithstanding any law to the contrary.

(3) A person who did not have financial responsibility that was in effect at the time of being charged with a violation of T.C.A. 55-12-139 as a metropolitan violation pursuant to Section 12.08.160 shall not have that person's violation dismissed. (Ord. BL2010-793 § 9, 2010; Ord. 93-729 § 1, 1993; Ord. 88-623 § 1, 1989; prior code § 27-1-288)

Chapter 12.36

SIZE, WEIGHT AND LOAD RESTRICTIONS

Sections:

12.36.010	**Application of chapter provisions—Exceptions.**
12.36.020	**Width of vehicles.**
12.36.030	**Loads projecting from passenger vehicles.**
12.36.040	**Height and length of vehicles and loads.**
12.36.050	**Special load limits—Pole trailers and structural materials.**
12.36.060	**Spilling or dropping of loads—Preventive measures required.**
12.36.070	**Gross weight per axle of vehicles and loads.**
12.36.080	**Permits for excess size and weight.**
12.36.090	**Restricted use of highways authorized when.**
12.36.100	**Heavily traveled streets—Nonmotorized and other vehicle restrictions.**
12.36.110	**Load restrictions.**
12.36.120	**Liability for damage to highways or structures.**

12.36.010 Application of chapter provisions—Exceptions.

A. It is a misdemeanor for any person to drive or move, or for the owner to cause or knowingly permit to be driven or moved on any highway any vehicle or vehicles of a size or weight exceeding the limitations stated in Tennessee State Statute Annotated.

B. The provisions of this title governing size, weight and load shall not apply to fire apparatus, road machinery, or to implements of husbandry, including farm tractors, temporarily moved upon a highway, or to a vehicle operated under the terms of a special permit issued as herein provided.

C. Section 12.84.020 sets out the penalty for violation of subsection A of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (66), 1990; prior code § 27-1-260)

12.36.020 Width of vehicles.

A. The total outside width of any vehicle or the load thereon shall not exceed eight feet, except as otherwise provided in this section.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (67), 1990; prior code § 27-1-261)

12.36.030 Loads projecting from passenger vehicles.

A. No passenger-type vehicle shall be operated on any highway with any load carried thereon extending beyond the left side of such vehicle nor extending more than six inches beyond the right side thereof.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (68), 1990; prior code § 27-1-262)

12.36.040 Height and length of vehicles and loads.

A. No vehicle, including any load thereon, shall exceed a height of thirteen feet six inches.

B. No vehicle, including any load thereon and bumpers, shall exceed a length of forty feet extreme overall dimensions. This limit shall not apply to air-conditioning or refrigeration equipment mounted on the front of a trailer or semi-trailer.

C. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (69), 1990; prior code § 27-1-263)

12.36.050 Special load limits—Pole trailers and structural materials.

A. Subject to the foregoing provisions of this chapter limiting the length of vehicles and loads, the load upon any vehicle operated alone or the load upon the front vehicle of a combination of vehicles shall not extend more than three feet beyond the foremost part of the vehicle, and the load upon any vehicle operated alone or the load upon the rear vehicle of a combination of vehicles shall not extend more than six feet beyond the rear of the bed or body of such vehicle.

B. The limitations as to length of vehicles and loads heretofore stated in Section 12.36.040 and subsection A of this section shall not apply to any load upon a pole trailer when transporting poles or pipes or structural material which cannot be dismembered, provided that no pole or pipe or other material exceeding eighty feet in length shall be so transported unless a permit has first been obtained as authorized in Section 12.36.080.

C. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (70), 1990; prior code § 27-1-264)

12.36.060 Spilling or dropping of loads—Preventive measures required.

A. No vehicle shall be driven or moved on any highway unless such vehicle is so constructed or loaded as to prevent any of its load from dropping, sifting or leaking, or otherwise escaping therefrom; provided, that this section shall not prohibit the necessary spreading of any substance in highway maintenance or construction operations.

B. No person shall operate on any highway any vehicle with any load unless such load and any covering thereon is securely fastened so as to prevent the covering or load from becoming loose, detached or in any manner a hazard to other users of the highway.

C. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (71), 1990; prior code § 27-1-265)

12.36.070 Gross weight per axle of vehicles and loads.

A. Subject to the limit upon the weight imposed upon the highway through any one axle as set forth in the Tennessee State Statute Annotated, the total gross weight with load imposed upon the highway by any one group of two or more consecutive axles of a vehicle or combination of vehicles shall not exceed the gross weight given for the respective distance between the first and last axle of the group of axles, measured longitudinally to the nearest foot as set forth in Tennessee State Statute Annotated.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (72), 1990; prior code § 27-1-266)

12.36.080 Permits for excess size and weight.

A. The department of public works will issue a special permit in writing at the direction of the traffic and parking commission authorizing the applicant to operate or move a vehicle or combination of vehicles of a size and weight of vehicle or load exceeding the maximum specified in this title or otherwise not in conformity with the provisions of this regulation upon any highway under the jurisdiction of the traffic and parking commission.

B. The application for any such permit shall specifically describe in writing the vehicle or vehicles and load to be operated or moved and the particular highways for which the permit to operate is requested.

C. The department of public works shall issue or withhold such permit at its discretion, or to establish seasonal or other time limitations within which the vehicles described may be operated on the highways indicated, or otherwise to limit or prescribe conditions of operation of such vehicle or vehicles, when necessary to protect the safety of highway users, or to protect the efficient movement of traffic from unreasonable interference, or to protect the highways from undue damage to the road foundations, surfaces or structures.

D. Every such permit shall be carried in the vehicle or combination of vehicles to which it refers and shall be open to inspection by any police officer or authorized agent of the traffic and parking commission, and no person shall violate any of the terms or conditions of such special permit.

E. Section 12.84.020 sets out the penalty for violation of subsection D of this section. (Ord. 93-575 § 4(l), 1993; p§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (73), 1990; prior code § 27-1-269)

12.36.090 Restricted use of highways authorized when.

A. The traffic and parking commission may by resolution prohibit the operation of vehicles upon any such highway or impose restrictions as to the gross weight of vehicles to be operated upon any such highway.

B. The traffic and parking commission shall cause to be erected and maintained signs designating the provisions of the resolution at each end of that portion of the highway affected thereby, and the resolution shall not be effective unless and until such signs are erected and maintained.

C. The traffic and parking commission may also, by resolution, prohibit the operation of trucks or other commercial vehicles, or may impose limitations as to the weight or size thereof, on certain highways designated by appropriate signs placed on such highways. (Prior code § 27-1-267)

12.36.100 Heavily traveled streets—Nonmotorized and other vehicle restrictions.

A. The department of public works is authorized to determine and designate those heavily traveled streets upon which shall be prohibited the use of the roadway by motor-driven cycles, bicycles, horse-drawn vehicles or other nonmotorized traffic, and shall erect appropriate signs giving notice thereof.

B. When signs are so erected giving notice thereof, no person shall disobey the restrictions stated on such signs.

C. Section 12.84.020 sets out the penalty for violation of subsection B of this section. (Ord. 93-575 § 4(m), 1993; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1(75), 1990; prior code § 27-1-271)

12.36.110 Load restrictions.

A. When signs are erected giving notice thereof, no person shall operate any vehicle with a gross weight in excess of the amounts specified at any time upon any of the streets or parts of streets described in Schedule IX* attached to and made a part of this regulation, except that such vehicles may be operated thereon to actively deliver or pick up materials or merchandise and then only by entering such street at the intersection nearest the destination of the vehicle and proceeding thereon no farther than the nearest intersection thereafter.

B. When signs are erected giving notice thereof, no person shall stand or park a vehicle with a gross weight in excess of the amounts specified at any time upon any of the streets or parts of streets described in Schedule IX* attached to and made a part of this regulation, except that such vehicles may stand or be parked thereon to actively deliver or pick up materials or merchandise and then only by entering such street at the intersection nearest the destination of the vehicle and proceeding thereon no farther than the nearest intersection thereafter.

C. No person shall operate any vehicle with a gross weight in excess of five thousand pounds at any time on the 1900 block of Hutton Drive or on Woodycrest Avenue between its intersection with Hutton Drive and Interstate Drive, except that such vehicles may be operated thereon for the purpose of delivering and picking up materials and merchandise to residences on said streets. Further, no person shall operate any vehicle with a gross weight in excess of thirty-one thousand five hundred pounds at any time on McCrory Lane, on Poplar Creek Road, or on Old Harding Pike between U.S. Highway 70 South and Highway 100, except that such vehicles may be operated thereon as follows:

1. For the delivery and pickup of materials and merchandise at residences located on or within three miles of one of the routes named herein, provided they make no more than eighteen such trips per week to any individual residence;

2. For the delivery and pickup of materials and merchandise at businesses located on or within one mile of one of the routes named herein, provided the property on which the business operates is zoned for commercial use;

3. For the delivery of building materials for buildings under construction for which a building permit has been obtained;

4. For the delivery and pickup of materials for properties under development for which a grading permit has been obtained, provided the property is being developed for residential or commercial use and the grading permit has not been issued for the purposes of filling the property as a result of a prior mineral extraction operation as defined in Section 17.04.060 of the Metropolitan Code or for any other grading activity on agriculturally-zoned property not associated with a residential or commercial development; and

5. When traffic is routed onto one or more of these routes by government officials as a result of an emergency.

Notwithstanding any other provision of this title to the contrary, the department of public works shall have the authority to issue citations for violations of this subsection C.

D. Section 12.84.020 sets out the penalty for violation of this section. (Ord. BL2020-492 § 1, 2021; Ord. BL2010-748 § 1, 2010; Amdt. 1 to Ord. 94-1174, 11/15/94; Ord. 94-1174 § 1, 1994; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1(74), 1990; prior code § 27-1-270)

* **Editor's note—**Schedule IX is on file for public inspection at the offices of the metropolitan traffic and parking commission.

12.36.120 Liability for damage to highways or structures.

A. Any person driving any vehicle, object or contrivance upon any highway or highway structure shall be liable for all damage which the highway or highway structure may sustain as a result of any illegal operation, driving or moving of such vehicle, object or contrivance, or as a result of operating, driving or moving any vehicle, object or contrivance weighing in excess of the maximum weight in this regulation but authorized by a special permit issued as provided in this chapter.

B. Whenever such driver is not the owner of such vehicle, object or contrivance, but is so operating, driving or moving the same with the express or implied permission of the owner, then said owner and driver shall be jointly and severally liable for any such damage.

C. Such damage may be recovered in a civil action brought by Metropolitan Nashville-Davidson County. (Prior code § 27-1-268)

Chapter 12.40

PARKING*

Sections:

12.40.010 Application of chapter provisions.
12.40.020 Sign requirements and use of curb/street painting.
12.40.030 Method of parking.
12.40.040 Stopping, standing or parking—Prohibited locations.
12.40.050 One-way roadways—Standing and parking restrictions.
12.40.060 Alley parking.
12.40.070 Parking on narrow streets.
12.40.080 Parking not to obstruct traffic.
12.40.090 Handicapped parking spaces.
12.40.095 Residential on-street handicapped parking space.
12.40.100 Parking near schools.
12.40.110 Stopping, standing or parking near hazardous or congested places.
12.40.120 Parking with left side of vehicle to curb.
12.40.130 Blocking driveways or garages.
12.40.140 Parking—Use of streets by parking lot attendants prohibited.
12.40.150 Parking for sale or repair purposes unlawful.
12.40.170 Trucks—parking restrictions and maneuvering for parking.
12.40.180 Large vehicle parking in the public right-of-way prohibited.
12.40.190 Reserved.
12.40.200 Unattended motor vehicles—Required procedures.
12.40.210 Illegal parking—Owner prima facie responsibility.
12.40.220 Removal of vehicles authorized when.
12.40.230 Chapter provisions not exclusive.

12.40.010 Application of chapter provisions.

The provisions of this chapter prohibiting the standing or parking of a vehicle shall apply at all times, or at the times herein specified, or as indicated on official signs except when it is necessary to stop a vehicle to avoid conflict with other traffic, or in compliance with the directions of a police officer or traffic-control device. (Prior code § 27-1-158)

12.40.020 Sign requirements and use of curb/street painting.

Whenever by this or any other regulation of the traffic and parking commission, any parking time is imposed or parking is prohibited on designated streets, it shall be the duty of the department of public works to erect appropriate signs or to paint the curbs and/or street surface giving notice thereof. No such regulations shall be effective unless such signs are erected and in place, or the curbs and/or street surface have been painted, at the time of any alleged offense. (Ord. BL2012-111, § 1, 2012; Ord. 93-575 § 4(n), 1993; prior code § 27-1-160)

12.40.030 Method of parking.

No person shall stand or park a vehicle in a roadway other than parallel with the edge of the roadway, headed in the direction of traffic, and with the curbside wheels of the vehicle within eighteen inches of the edge of the roadway, except as provided in the following subsections:

A. Upon those streets which have been officially marked or signed for angle parking, vehicles shall be parked at the angle to the curb indicated by such marks or signs, and no vehicle shall occupy more than one parking stall or position when plainly marked;

B. Angle parking shall be permitted in suburban business districts within the jurisdiction of metropolitan government where ramps have been constructed in front of or adjacent to store buildings under plans and specifications approved by the traffic and parking commission, but in no case shall any vehicle project into the street from the normal curbline produced. Angle parking is permitted in the location described and designated in Schedule VII. (Ord. 90-1339 § 1 (27-7), 1990; prior code § 27-1-144)

12.40.040 Stopping, standing or parking—Prohibited locations.

A. Except when necessary to avoid conflict with other traffic, or in compliance with regulation of the directions of a police officer or official traffic-control device, no person shall:

1. Stop, stand or park a vehicle:

a. On the roadway side of any vehicle stopped or parked at the edge or curb of a street,

***Editor's note—**Schedule VII, referred to in Sections 12.40.030, 12.40.040, 12.40.170, 12.40.220 and 12.40.230 of this chapter, is on file for public inspection at the offices of the metropolitan traffic and parking commission.

b. On a sidewalk; however, a bicycle may be parked on a sidewalk unless otherwise posted if it does not impede the normal and reasonable movement of pedestrians or other traffic. Any vehicle in violation of this provision shall be towed and the owner or operator shall be responsible for the payment of the towing charges,

c. Upon any median, buffer strip, planting strip or landscape strip located between a sidewalk and roadway,

d. Within an intersection,

e. On a crosswalk,

f. Between a safety zone and the adjacent curb, or within thirty feet of points on the curb immediately opposite the ends of a safety zone, unless a different length is indicated by signs or markings,

g. Alongside or opposite any street excavation or obstruction, when stopping, standing or parking would obstruct traffic,

h. Upon any bridge or other elevated structure upon a highway or within a highway tunnel,

i. On any railroad tracks,

j. At any place where official signs prohibit stopping, standing or parking;

2. Stand or park a vehicle, whether occupied or not, except momentarily to pick up or discharge a passenger or passengers:

a. In front of a public or private driveway,

b. Within fifteen feet of a fire hydrant,

c. Within thirty feet of a crosswalk at an intersection,

d. Within thirty feet upon the approach to any flashing signal, stop sign, yield sign or traffic-control signal located at the side of a roadway,

e. Within twenty-five feet of the driveway to fire station and on the side of a street opposite the entrance to any fire station within seventy-five feet of such entrance, when properly signposted,

f. At any place where official signs prohibit standing,

g. On any controlled-access highway,

h. In the area between roadways of a divided highway, including crossovers,

i. In front of any postal mail drop or box,

j. In any area designated "Residential Permit Parking Only" except for allowable time limit parking provided for vehicles without a residential parking permit;

3. Park a vehicle, whether occupied or not, except temporarily, for the purpose of and while actually engaged in loading or unloading merchandise or passengers:

a. Within fifty feet of the nearest rail of a railroad crossing,

b. At any place where official signs prohibit parking.

B. No person shall move a vehicle not lawfully under his control into any such prohibited area or away from a curb such a distance as is unlawful, as set out in Schedule VII.

C. The owner of any personal property or motor vehicle found in violation of subsection A.1.e. of this section shall be subject to a fine in the amount of fifty dollars, which shall be assessed by the issuance of a parking citation.

D. The parking of abandoned motor vehicles shall be controlled pursuant to Sections 12.08.210 through 12.08.220.

E. Notwithstanding the general signage requirements of section 12.40.020 of this chapter to the contrary, no person shall stop, stand or park a motor vehicle within any bicycle lane unless the metropolitan traffic and parking commission has determined that parking within the bicycle lane in specific locations is appropriate during certain hours and signs have been erected in the designated area(s) to that effect. The owner of any motor vehicle found in violation of this subsection shall be subject to a fine in the amount of fifty dollars, which shall be assessed by the issuance of a parking citation.

F. In parking lots with designated spaces for ten or more vehicles, no vehicle shall be parked in a space designated for charging any electric vehicle by any sign or pavement marking using the term "electric vehicle charging," or otherwise reasonably indicating designation for electric vehicle charging, unless the vehicle is a plug-in electric vehicle. The owner of any motor vehicle found in violation of this subsection shall be subject to a fine in the amount of fifty dollars, which shall be assessed by the issuance of a parking citation. In spaces designated for charging an electric vehicle on property owned by the Metropolitan Government of Nashville and Davidson County, such spaces shall be marked with official signs or pavement markings to prohibit parking of any vehicle other than plug-in electric vehicles. On or before January 1, 2018, any space designated for charging electric vehicles in parking lots with designated spaces for ten or more vehicles must be marked by a sign, pavement marking or other indication that parking of non-electric vehicles in such space is prohibited. As used in this section, "plug-in electric vehicle" shall mean any motor vehicle that draws electricity from a battery that is capable of being charged from an external source.

(Ord. BL2017-561 § 1, 2017; Amdt. 1 to Ord. BL2016-496 § 1, 2017; Ord. BL2016-496 § 1, 2017; Ord. BL2010-793 § 10, 2010; Ord. BL2008-307 § 1, 2008;

Ord. 99-1590 § 10, 1999; Ord. 93-620 § 3, 1994; Ord. 93-562 § 13, 1993; Ord. 89-986 § 1, 1989; prior code § 27-1-145)

12.40.050 One-way roadways—Standing and parking restrictions.

In the event a highway includes two or more separate roadways and traffic is restricted to one direction upon any such roadway, no person shall stand or park a vehicle upon the left-hand side of such one-way roadway unless signs are erected to permit such standing or parking. The department of public works is authorized to determine when standing or parking may be permitted upon the left-hand side of any such one-way roadway, and to erect signs giving notice thereof. (Ord. 93-575 § 4(o), 1993; prior code § 27-1-157)

12.40.060 Alley parking.

No person shall park within an alley except for the expeditious loading or unloading of materials. (Prior code § 27-1-147)

12.40.070 Parking on narrow streets.

A. The department of public works is authorized to erect signs indicating no parking upon any street when the width of the roadway does not exceed twenty feet, or upon one side of a street as indicated by such signs when the width of the roadway does not exceed thirty feet. Notwithstanding the foregoing provision to the contrary, parking shall be allowed on both sides of the following streets, in either direction on the street:

1. Berry Street.
2. Birdsall Street.
3. Bryan Street.
4. Clarke Street.
5. Cleves Street.
6. Debow Street.
7. Dodson Street.
8. Elliston Street.
9. Jones Street.
10. Lawrence Street.
11. Overton Street.

B. When official signs prohibiting parking are erected upon narrow streets as authorized herein, no person shall park a vehicle upon any such street in violation of any such sign. (Amdt. 1 to Ord. BL2009-601 § 1; Ord. BL2009-601 § 1, 2010; Ord. 93-575 § 4(p), 1993; prior code § 27-1-156)

12.40.080 Parking not to obstruct traffic.

No person shall park any vehicle upon a street in such a manner or under such conditions as to leave available less than twelve feet of the width of the roadway for free movement of vehicular traffic. (Prior code § 27-1-146)

12.40.090 Handicapped parking spaces.

A. Definitions. For the purposes of this section:

1. "Handicapped" means those people who are mobility-limited, unable to move about freely without restrictions.

2. "Properly identified parking space" means a parking space with a sign carrying the handicapped designation visible to a motorist driving a motor vehicle.

3. "Properly identified vehicle" means a vehicle bearing any of the following: a handicapped symbol or special state-issued limited-use permit prominently displayed on the windshield, or a license plate issued to disabled veterans or handicapped persons.

B. Unlawful Activities—Removal of Vehicles. The parking, stopping or standing of any personal property, including motor vehicles not properly identified as being used by a handicapped person, or any other means of obstructing handicapped parking spaces on private and public property shall be prohibited at all times pursuant to the inherent and statutory powers of the Metropolitan Government of Nashville and Davidson County to preserve the health, welfare and safety of its citizens. Any vehicle or other personal property found to be parked or standing in a handicapped parking space not identified as being used by a handicapped person shall, with the consent of the owner, lessee or other person in possession or control of the real estate where such a handicapped parking space has been established, be towed away or removed upon the request of any law enforcement officer after the vehicle has been cited by metropolitan police and adequate time has been given the owner to remove the vehicle. The owner of such personal property shall be responsible for all tow-in charges and resulting storage charges, if any. The sign designating a handicapped parking place shall be permanently placed at least five feet above grade. If the sign is not permanently displayed, no citation shall be issued for violation thereof.

C. The owner of any personal property or motor vehicle found in violation of this section shall be subject to a fine in the amount of fifty dollars, which shall be assessed by the issuance of a parking citation.

D. Signs. All signs posted after January 1, 1989, on public or private properties to designate handicapped parking shall contain the words "Unauthorized parking is punishable by a fine up to $100.00."

E. Enforcement. The provisions of Tennessee Code Annotated Section 55-21-108 shall be enforced within the area of the metropolitan government, whether viola-

tions occur on public or private property. (Ord. BL2010-793 § 11, 2010; Ord. 95-1360 § 1, 1995; Amdt. 1 to Ord. 89-1069, 2/6/90; Ord. 89-1069 § 2, 1990; prior code § 27-1-157.5)

12.40.095 Residential on-street handicapped parking space.

A. Individuals may contact the department of public works to request that a residential on-street handicapped parking space be placed in front of their residence at no cost to the resident. The department shall evaluate each request to determine if a residential on-street handicapped parking space is appropriate. Factors to be considered in determining whether placement of a residential on-street handicapped parking space is appropriate include:

1. The availability of off street parking, including a driveway, parking lot, or garage

2. Whether the person requesting the space possesses a properly identified vehicle

3. Whether the residence where the space is requested contains an accessibility ramp or other similar accommodation

4. Whether the individual is eligible for paratransit services offered by the metro government

5. Any other factor which, upon inspection of the residential property, is deemed appropriate by the department

B. Residential on-street handicapped parking spaces are not reserved for the resident or individual who requested the space and may be used by other properly identified vehicles. (Ord. BL2016-497 § 1, 2017)

12.40.100 Parking near schools.

A. The department of public works is authorized to erect signs indicating no parking upon either or both sides of any street adjacent to any school property when such parking would, in his opinion, interfere with traffic or create a hazardous situation.

B. When official signs are erected indicating no parking upon either side of a street adjacent to any school property as authorized herein, no person shall park a vehicle in any such designated place. (Ord. 93-575 § 4(q), 1993; prior code § 27-1-155)

12.40.110 Stopping, standing or parking near hazardous or congested places.

A. The department of public works is authorized to determine and designate by proper signs places, not exceeding one hundred feet in length, in which the stopping, standing or parking of vehicles would create an especially hazardous condition or would cause unusual delay to traffic.

B. When official signs are erected at hazardous or congested places as authorized herein, no person shall stop, stand or park a vehicle in any such designated place. (Ord. 93-575 § 4(r), 1993; prior code § 27-1-150)

12.40.120 Parking with left side of vehicle to curb.

No vehicle shall stop, stand or park with its left side to the curb, except on one-way streets. (Prior code § 27-1-151)

12.40.130 Blocking driveways or garages.

No person shall stop, stand or park any vehicle in such a manner as to block or impede ingress or egress from any public or private driveway or garage. (Prior code § 27-1-152)

12.40.140 Parking—Use of streets by parking lot attendants prohibited.

It is unlawful for any person who owns, operates, manages or works at a parking lot or garage to park, cause or authorize to be parked on any street or alley within the jurisdiction of the metropolitan government any automobile or other motor vehicle for which a parking or storage fee is charged. (Prior code § 27-1-142)

12.40.150 Parking for sale or repair purposes unlawful.

A. No person shall park a vehicle upon the roadway for the purpose of:

1. Displaying such a vehicle for sale;

2. Washing, greasing or repairing such vehicle, except repairs necessitated by an emergency.

B. No person shall park a vehicle upon residential property abutting or adjacent to an arterial street, as specified in the Major and Collector Street Plan, for the purpose of displaying such a vehicle for sale. (Ord. BL2016-417 § 1, 2016; prior code § 27-1-148)

12.40.170 Trucks—Parking restrictions and maneuvering for parking.

A. No operator of any truck or tractor-semi-trailer shall maneuver into or across traffic lanes or interfere with or obstruct the movement of traffic in such lanes in order to park such vehicles on any of the streets designated in Schedule VII of the regulations of the traffic and parking commission during the hours indicated in such schedule.

B. No operator shall stand any vehicle or motor vehicle for any purpose whatsoever so that any portion of such vehicle shall extend a greater distance from the

nearest curb of such street or roadway than would a similar vehicle lawfully parked at the same location during the hours indicated and on the streets designated in such Schedule VII. (Prior code § 27-1-141)

12.40.180 Large vehicle parking in the public right-of-way prohibited.

A. Definitions.

For purposes of this section, "large vehicle" means any commercial, oversized, or heavy-duty vehicle classified by the United States Department of Transportation (USDOT) vehicle classification system as Class 4 or higher. The term also includes, but is not limited to: box trucks, semi-trailers, tractors, dump trucks, tank trucks, mobile vending units, and any attached or detached trailer that is classified as a USDOT Class 3 trailer or higher.

For purposes of this section, "public right-of-way" means all streets, roads, highways, avenues, boulevards, alleys, bridges, tunnels, or other public ways dedicated to public use and maintained for general public travel within the area of the metropolitan government.

B. Parking Large Vehicles in the Public Right-of-Way Prohibited.

1. The parking, stopping, or standing of any large vehicle in the public right-of-way is strictly prohibited unless otherwise authorized by a valid permit issued by the Nashville Department of Transportation and Multimodal Infrastructure (NDOT).

2. Overnight parking by large vehicles in the public right-of-way is prohibited.

3. Large vehicles may stand temporarily in the public right-of-way during daylight hours only while actively providing a service to a neighboring business or residence. A minimum twelve-foot-wide travel lane must remain open for vehicular traffic in each direction if pavement markings are present (e.g., double yellow line, center line), which requires a twenty-four-foot total clear width; or, a minimum twelve-foot total clear width must remain open on the roadway if no pavement markings are present. All vehicles must be removed within thirty minutes of service completion. Regulatory signs shall take precedence over pavement markings.

C. Loading and Unloading Restrictions for Large Vehicles. Loading and unloading operations by large vehicles shall primarily take place only in designated loading zones, alleys, or loading docks. Stopping a large vehicle in an active vehicular traffic lane in the public right-of-way is strictly prohibited unless absolutely necessary to complete the service, and is subject to the following safety and operational limitations:

1. The stop must not exceed thirty minutes and must be conducted expeditiously.

2. A minimum twelve-foot-wide travel lane must remain open for vehicular traffic in each direction if pavement markings are present (e.g., double yellow line, center line), which requires a twenty-four-foot total clear width; or, a minimum twelve-foot total clear width must remain open on the roadway if no pavement markings are present. Regulatory signs shall take precedence over pavement markings.

3. The large vehicle must be visibly engaged in the immediate loading or unloading process (e.g., lift gate open, doors open, and staff must be visibly handling cargo); and

4. The operator of the large vehicle must activate warning flashers and immediately deploy visibly placed traffic cones or warning triangles behind the vehicle to alert approaching traffic.

D. Enforcement and Penalties. Both the Nashville Department of Transportation and Multimodal Infrastructure (NDOT) and the Metropolitan Nashville Police Department (MNPD) are fully authorized to enforce this section. Violators are subject to penalties including immediate orders to move the large vehicle, fines, and towing at the owner's expense. Any violation that constitutes an immediate public safety hazard or impedes emergency access will result in immediate ticketing and towing. (Ord. BL2025-956 § 1, 2025; Amdt. 1 to Ord. BL2009-491 § 1, 2009; Ord. BL2009-491 § 1, 2009; prior code § 27-1-153)

12.40.190 Reserved.

Editor's note—Ord. BL2025-956 § 2, passed Dec. 4, 2025, repealed § 12.40.190, which pertained to night parking restrictions—Tank trucks, school buses and certain other vehicles and derived from Ord. BL2021-867 § 1, 2021; Ord. BL2020-493 § 1, 2021; prior code § 27-1-154.

12.40.200 Unattended motor vehicles—Required procedures.

A. No person driving or in charge of a motor vehicle shall permit it to stand unattended without first stopping the engine, locking the ignition, removing the key from the ignition, effectively setting the brake thereon and, when standing upon any grade, turning the front wheel to the curb or side of the highway.

B. Notwithstanding the provisions of subsection A. of this section to the contrary, it shall be lawful to start a vehicle and leave it running if the vehicle is parked on private residential property, the doors of the vehicle remain locked, the vehicle cannot be driven without a key in the ignition switch, and there is no key in the ignition switch while the vehicle is unattended. (Amdt. 1 to Ord. BL2010-612 § 1, 2010; Ord. BL2010-612 § 1, 2010)

12.40.210 Illegal parking—Owner prima facie responsibility.

In any prosecution charging a violation of any law or regulation governing the standing or parking of a vehicle, proof that the particular vehicle described in the citation or warrant was parked in violation of any such law or regulation, together with proof that the defendant named in the citation or warrant was, at the time of such parking, the registered owner of such vehicle, shall constitute in evidence a prima facie presumption that the registered owner of such vehicle is responsible for such violation, whether such violation is committed by the registered owner's bailee, lessee or customer. (Prior code § 27-1-143)

12.40.220 Removal of vehicles authorized when.

Whenever any police officer finds a vehicle in violation of any of the parking regulations set out in Schedule VII, such officer is authorized to move such vehicle, or require the driver or other person in charge of the vehicle, if present, to move the same to a position off the roadway. (Prior code § 27-1-161)

12.40.230 Chapter provisions not exclusive.

The provisions of this chapter imposing a time limit on parking shall not relieve any person from the duty to observe other and more restrictive provisions prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times, as shown in Schedule VII. (Prior code § 27-1-159)

Chapter 12.41

VALET SERVICES*

Sections:

12.41.010	**Definitions.**
12.41.020	**License required—Issuance—Conditions.**
12.41.030	**Valet location permit required.**
12.41.040	**Conditions of valet parking permits.**
12.41.050	**Insurance requirements.**
12.41.060	**Hearing before suspension, revocation or probation and after refusal to renew license or permit.**
12.41.070	**Employees—Background checks.**
12.41.080	**Valet parking operations and fees.**
12.41.090	**Designation of space for service.**
12.41.100	**Enforcement.**
12.41.110	**Rules and regulations.**

12.41.010 Definitions.

As used in this chapter:

"Commission" means the metropolitan traffic and parking commission or its designee.

"Department" means the metropolitan department of public works, or its designee. The designee of the department of public works may be its contractor, provided the initial term of such contract does not exceed sixty months.

"Director" means the director of the metropolitan department of public works.

"License" means the license issued by the department of public works allowing a person to engaged in the business of valet parking within the area of the metropolitan government.

"Permit" or "valet parking permit" means the permit issued by the department of public works allowing a valet parking operator to conduct a valet service at a specific location or locations.

"Valet parking," "valet parking operation," "valet operation" or "valet service" means the process by which patron's vehicles are removed from designated spaces on the public street to private parking areas for storage and subsequent retrieval upon patron's demand.

"Valet parking operator," "valet operator," or "operator" means the person, business or entity engaged in valet parking. (Ord. BL2021-646 § 6, 2021; Amdt. 1 to Ord. BL2011-916 § 1, 2011; Ord. BL2011-916 § 1, 2011)

12.41.020 License required—Issuance—Conditions.

A. Effective from and after September 1, 2011, no person shall engage in the business of valet parking within the area of the metropolitan government without first obtaining and keeping in force a license from the commission as a valet operator, provided that no such license shall be required for persons conducting or offering valet parking services solely on private property without involving the use of any public right-of-way.

B. Any person desiring to engage in the business of providing valet services within the area of the metropolitan government shall make application to the department, which application shall be upon forms to be provided by the department. The completed application must contain all the information required by such form and must be verified under oath.

C. The application form to be adopted by the commission and provided by the department shall require such information as the commission determines to be necessary and proper, including, but not limited to, the following information:

1. The full name and address of the person, firm or corporation desiring to obtain a license.

2. The names and addresses of at least two references as to the applicant's financial responsibility;

3. That the applicant is ready, willing and able to comply with all the rules and regulations of the department, and the laws of the metropolitan government, the State of Tennessee, and the United States, including applicable workers' compensation, minimum wage, and labor laws.

4. That the applicant will provide the department with the names and home addresses of all employees to be used or employed by the applicant in the business of providing valet services. The applicant shall provide an update upon each renewal of his license;

5. That the applicant will take out and maintain in full force and effect such policies of insurance as are herein required;

6. That the applicant has a defined claims handling process in place to address citizen complaints and claims; and

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***Editor's note—**Ord. BL2011-916, § 1, approved July 21, 2011, repealed the former Ch. 12.41, §§ 12.41.010—12.41.070, and enacted a new Ch. 12.41 as set out herein. The former Ch. 12.41 pertained to similar subject matter and derived from Ord. 96-529 § 1 (part), adopted 1997; Ord. BL2010-793 § 12, adopted 2010.

7. Proof of a valid business tax licensed issued by the Davidson County Clerk.

D. If the commission finds upon examination that the applicant is capable, willing and qualified to provide valet services and can conform to the laws of the metropolitan government, the State of Tennessee, the United States and the rules and regulations of the commission, then the department shall grant and issue to such applicant a valet operator license; otherwise, the application shall be denied.

E. Such license shall state the name and address of the licensee, the date of issuance, and such other information as the commission determines to be necessary and proper.

F. A valet operator license issued by the department pursuant to this section shall be valid for a period of one year at an annual fee of one hundred dollars. Such license shall not be sold, assigned, or otherwise transferred without approval of the commission, and shall expire immediately upon the licensee terminating the valet service or upon revocation by the commission. Renewal shall be on an annual basis and shall be granted after confirmation of the extension of all applicable permit requirements established in this chapter and the payment of applicable fees. (Amdt. 1 to Ord. BL2011-916 § 1, 2011; Ord. BL2011-916 § 1, 2011)

12.41.030 Valet location permit required.

In addition to the licensing requirements of Section 12.41.020 of this chapter, the department shall issue parking permits to valet parking operators to conduct their operations on public streets as a commercial enterprise or in furtherance of a commercial enterprise. A separate permit is required for each location where valet parking services are provided. Permits will be issued only for locations where valet parking would not be detrimental to the public safety, health and welfare of the inhabitants of Nashville and Davidson County and only after approval of the commission. (Ord. BL2011-916 § 1, 2011)

12.41.040 Conditions of valet parking permits.

A. Hold Harmless. Each valet parking operator applying for a permit for use of public property shall execute an agreement approved by the metropolitan department of law providing for the valet operator to indemnify, hold harmless, and defend the metropolitan government, its officers, agents and employees against, and assume all liability for, any and all claims, suits, actions, damages, liabilities, expenditures, or causes of actions of any kind arising from its use of the public streets for the purposes authorized in this section and resulting or accruing from any alleged negligence, act, omission or error of the valet parking operation, its agents or employees and/or arising from the failure of the valet parking operation, its agents or employees, to comply with each and every requirement of this section or with any other ordinance of the metropolitan government applicable to the valet parking operation resulting in or relating to bodily injury, loss of life or limb or damage to property sustained by any person, firm, corporation, or other business entity. The valet parking operator shall agree to save the metropolitan government, its officers, agents and employees harmless from and against all judgments, orders, decrees, attorneys' fees, costs, expenses and liabilities incurred in and about any such claim, investigation or defense thereof, which may be entered, incurred or assessed as a result of the foregoing. The valet parking operator shall defend, at its sole cost and expense, any legal action, claim or proceeding instituted by any person against the metropolitan government, its officers, agents and employees as a result of any claim, suit or cause of action accruing from activities authorized by this chapter for injuries to body, limb or property as set forth in this subsection.

B. Term. The term of each permit shall be for one year. Renewal shall be on an annual basis and may be granted after confirmation of the extension of all applicable permit requirements established in this chapter and the payment of applicable fees.

C. Cancellation. A valet parking permit may be canceled by the commission under the following circumstances:

1. The commission determines that parking spaces permitted for valet parking are no longer being used for the purpose of valet parking or are otherwise abandoned. Valet parking spaces are considered abandoned if they are not utilized for valet parking for a continuous period of thirty days;

2. The commission determines that the valet operation is creating a hazardous traffic condition and/or serious disruption of traffic flow or is otherwise inimical to the public health, safety and welfare;

3. Parking is no longer permitted in the area where valet service is provided;

4. The valet parking operator four times fails to comply with the rules and regulations established by the commission and/or the provisions of this chapter or otherwise creates a situation that is inimical to the public health, safety and welfare.

D. Cancellation pursuant to subparagraph C.4. of this section shall preclude the valet parking operator, a general partner, or immediate family member of the operator from being issued a valet parking permit for any location for a period of one year if the operator whose license has been canceled has any participation in

the operation, management and/or maintenance of the valet parking operation(s) for which the permit application is being made.

E. When a permit is canceled by the commission pursuant to subsection C. of this section the commission shall immediately provide the permit holder written notice by certified mail of the cancellation and the reasons for the cancellation. (Ord. BL2021-646 § 7, 2021; Ord. BL2011-916 § 1, 2011)

12.41.050 Insurance requirements.

No license to operate a valet service shall be issued, become effective or continue unless there is in full force and effect a liability insurance policy covering the valet parking operator with not less than a one million dollar single limit. Such liability insurance policy shall be with an insurance company authorized to do business in Tennessee and approved by the department of law. The liability insurance policies required in this section shall name the metropolitan government as an additional insured. (Ord. BL2011-916 § 1, 2011)

12.41.060 Hearing before suspension, revocation or probation and after refusal to renew license or permit.

A. No action to suspend, revoke or place on probation any license or permit provided for in this chapter shall be taken by the commission until the licensee or permittee has been furnished a written statement of the charges and a notice of the time and place of the hearing to be held thereon. The furnishing of such notice and the reasons for the commission's proposed action shall be given to such licensee or permittee at least fifteen days prior to the date of the hearing. If at such hearing, the commission finds the charges against the licensee or permittee to be true, it may suspend, revoke or place on probation the license or permit previously issued by it.

B. Upon the failure to renew any license or permit, the commission shall so notify the licensee or permittee, giving the licensee or permittee the reasons for its failure to renew the license or permit. The licensee or permittee may by a simple written request addressed to the commission, request a hearing by the commission as to the reasons for the commission's failure to renew the license or permit. The commission shall then grant the licensee or permittee a hearing and shall fix the time and place for such hearing within thirty days and shall promptly notify the licensee or permittee of the time and place. It shall be incumbent upon the commission at the hearing to substantiate the reasons for its failure to renew the license or permit.

C. At any hearing provided for in this chapter, the licensee or permittee shall have the right to be represented by an attorney of his choice, to present evidence, and to have witnesses testify under oath on his behalf. At such hearing, the strict rules of evidence shall not apply. (Ord. BL2011-916 § 1, 2011)

12.41.070 Employees—Background checks.

A. The valet parking operator shall require all employees who operate motor vehicles to have in their possession at the time of such operation a valid Tennessee drivers license.

B. For purposes of this ordinance, all persons performing valet parking services for the valet parking operator shall be considered employees, and not independent contractors of the valet parking operator.

C. At the time an application for a license is made, the applicant shall certify that all employees of the valet parking operator are eligible to serve as an employee of an operator. No person shall be eligible to serve as a valet parking operator or an employee of an operator if he/she has been:

1. Convicted, pled guilty, placed on diversion, probation or parole, or pleaded nolo contendere within the past five years for violation of any of the following criminal offenses under the laws of Tennessee, any other state or of the United States: homicide, rape, aggravated assault or battery, kidnapping, robbery, burglary, child molestation, any sex-related offense, leaving the scene of an accident, criminal solicitation, or criminal attempt to commit any of the above, perjury or false swearing in making any statement under oath in connection with the application for a driver's permit, or the felony possession, sale or distribution of narcotic drugs or controlled substances; or

2. Convicted of two or more felony offenses within the past ten years. (Amdt. 1 to Ord. BL2011-916 § 1, 2011; Ord. BL2011-916 § 1, 2011)

12.41.080 Valet parking operations and fees.

A. The commission shall allow valet parking operators to utilize designated on-street parking spaces for customers dropping off or retrieving a vehicle from valet employees. Valet parking operations are permitted between 11:00 a.m. and 2:00 p.m. and between 6:00 p.m. and 6:00 a.m. only; provided however, hotels shall be permitted twenty-four-hour valet parking. Valet parking may be allowed for additional hours upon a showing that additional hours would not impede the flow of traffic or otherwise be detrimental to the public health, safety and welfare, subject to rules and regulations as adopted by the commission, which rules and regulations shall provide for special occasion or special event valet parking.

B. The commission shall provide to the valet operator two parking spaces for a valet operation. The spaces shall be located in front of the establishment being serviced. Additional spaces may be provided at the discretion of the traffic and parking commission. Valet parking operators may be required to share parking spaces provided the commission determines that such an arrangement is necessary for the public health, safety and welfare.

C. Valet parking permit applicants shall be charged an application fee plus additional fees for use of the public right-of-way, as set by the traffic and parking commission, as approved by the finance director. All fees shall be paid in advance.

D. All permit fees will be deposited into the general fund of the metropolitan government.

E. The granting of a valet parking permit in no way provides a vested right or property interest in any parking space, and valet parking spaces may be removed at any time and/or valet parking privileges revoked in the interest of the public health, welfare and safety. Valet parking permits and privileges may not be transferred.

F. The permit holders are responsible for reimbursing the metropolitan government for the cost of installing any signs, notices or warnings deemed necessary for the establishment of valet parking operations. Permit holders will be billed for any required installation by the department. (Ord. BL2024-291 § 1, 2024; Ord. BL2011-916 § 1, 2011)

12.41.090 Designation of space for service.

A. Valet spaces shall be designated by the commission. The designation shall be by clearly marked signs indicating the time of valet parking and marked as a "Tow-Away zone."

B. Valet service shall be operated entirely within the confines of the spaces provided for valet use. There shall be no storage of vehicles in the area used for ingress and egress of passengers in the valet area. A vehicle will be considered stored if it remains in the valet area for more than ten minutes whether occupied or not. Valet service on public property shall not be provided in any location other than in the area designated. (Ord. BL2011-916 § 1, 2011)

12.41.100 Enforcement.

A. Violators shall be fined fifty dollars for failure to comply with the provisions of this chapter or a failure to operate a valet service in the manner prescribed by this chapter. Further, each day the violation continues shall constitute a separate offense. All fines paid pursuant to this section will be deposited into the general fund of the metropolitan government.

B. Valet parking operators shall pay all fines and fees, including towing charges, arising in connection with a patron's vehicle which is in the possession of the valet parking operator at the time such fine, fee or charge is incurred. This does not preclude the valet parking operator from also being cited for violations of this chapter which resulted in the imposition of the fines and fees. (Ord. BL2011-916 § 1, 2011)

12.41.110 Rules and regulations.

The commission shall have the authority to adopt and implement rules and regulations, not inconsistent with the chapter, which will effectuate the purposes of this chapter and secure compliance with its provisions to protect the health and safety of the inhabitants within the area of the metropolitan government. (Ord. BL2011-916 § 1, 2011)

Chapter 12.42

PERMIT PARKING PROGRAMS

Sections:

Article I. Residential Permit Parking Program

12.42.010 Definitions
12.42.020 Residential permit parking areas authorized.
12.42.030 Residential permit parking areas—Eligibility requirements.
12.42.040 Procedures to be used in designation or withdrawing designations of residential permit parking areas.
12.42.050 Implementation.
12.42.060 Residential parking permit.
12.42.070 Exemption from residential permit parking area.
12.42.080 Residential parking permit fee.
12.42.090 Residential permit parking visitor's permit.
12.42.100 Misrepresentation by applicant for permit—Illegal use of permits.
12.42.110 Penalties.
12.42.115 University area residential lots eligible for individual residential permit parking.

Article II. Downtown Area Residential Permit Parking Program

12.42.120 Definitions.
12.42.130 Downtown area permit parking authorized.
12.42.140 Implementation.
12.42.150 Downtown area residential parking permit.
12.42.160 Downtown area residential parking permit fee.
12.42.170 Visitor's permit.
12.42.180 Misrepresentation by applicant for permit—Illegal use of permits.
12.42.190 Penalties.

Article I. Residential Permit Parking Program

12.42.010 Definitions

As used in this article, the following words, terms and phrases shall have the meaning ascribed to them in this section, except when the context clearly indicates a different meaning:

"Chief Traffic Engineer" means the chief traffic engineer or his/her designee. The designee of the chief traffic engineer may be a contractor, provided the initial term of such contract does not exceed sixty months.

"Motor vehicles" means an automobile, truck, motorcycle or other motor-driven form of transportation.

"Person" means a natural person.

"Primarily residential" means fifty percent of the ground level space is residential.

"Residential area" means a contiguous or nearly contiguous area containing public streets and highways or parts thereof where residents dwell.

"Resident motor vehicle" means a Davidson County registered motor vehicle owned or leased by a resident of the residential permit parking area.

"Residential permit parking areas (RPP)" means a residential area designated as herein provided where resident motor vehicles displaying a valid permit as described herein shall be exempt from parking time restrictions established pursuant to this article. (Ord. BL2021-646 § 8, 2021; Ord. 99-1590 § 1, 1999; Ord. 93-562 § 1, 1993)

12.42.020 Residential permit parking areas authorized.

The chief traffic engineer is authorized to restrict by order, subject to approval by the traffic and parking commission as hereinafter provided, parking on public streets in a residential area to vehicles bearing a valid parking permit issued pursuant to this article. This authority shall be in addition to, and may be exercised in conjunction with, any other authority the chief traffic engineer may have to regulate the times and conditions of parking. (Ord. 99-1590 § 2, 1999; Ord. 93-562 § 2, 1993)

12.42.030 Residential permit parking areas—Eligibility requirements.

In determining whether an area identified as eligible for residential permit parking shall be designated as a residential permit parking area, the chief traffic engineer shall take into consideration the following factors:

A. The extent of the desire and need of the residents for residential permit parking and their willingness to bear the administrative costs in connection therewith;

B. Proximity of the neighborhood to major "parking attractors" including employments centers, retail stores, restaurants, universities, hospitals, and tourist attractions;

C. Scarcity of convenient off-street parking for residents;

D. The extent to which motor vehicles registered to persons residing in the residential area cannot be accommodated by the number of available off-street parking spaces;

E. Substantial use of neighborhood curb space by commuters and other nonresidents for parking;

F. Traffic, noise and safety problems caused by vehicles cruising for parking. (Ord. 99-1590 § 3, 1999; Ord. 93-562 § 3, 1993)

12.42.040 Procedures to be used in designation or withdrawing designations of residential permit parking areas.

A. A petition, requesting permit parking (RPP) area, shall be submitted to the councilmember representing the council district in which the RPP area is located. The petition must be signed by seventy-five percent of the residents within the geographic limits as stated in the petition.

NOTE: A resident is any person living in the proposed permit parking area with a valid Tennessee driver's license showing an address within the proposed RPP area, who owns or leases a motor vehicle, or drives an assigned business vehicle. All motor vehicles must have current Tennessee registration showing the proper address. Residents who are legally handicapped and persons over sixty years old who do not drive may also sign a petition. Proof of residency will be required for these persons.

1. The petition shall include the following information:

a. Each petitioner's name (signature and printed), Tennessee driver's license number, and vehicle license number. Legally handicapped and those over sixty years of age who do not drive should include proof of residency.

b. The time of day that resident permits will be required. Example: seven a.m. to five p.m., twenty-four hours, etc.

c. Clear description of the geographic limits of the area(s) requested.

d. If desired, a maximum time limit that nonpermit holders (visitors, family members, etc.) could legally park. Example: two hours, four hours, etc.

B. The councilmember shall then submit the petition to the chief traffic engineer with a written request for an assessment or study by staff to determine whether the geographic area within the boundaries set forth in the area from which residents have signed the petition and surroundings and other conditions affecting parking within those same boundaries meet the factors outlined in Section 12.42.030. After the assessment from staff has been completed, the councilmember shall conduct a community meeting for the proposed RPP area prior to submitting a recommendation to the Traffic and Parking Commission regarding whether the item should be placed on an agenda for an upcoming Traffic and Parking Commission public hearing.

C. The chief traffic engineer shall recommend, by report to the traffic and parking commission, whether to designate the area under consideration as a RPP area, specifying the time or limitations recommended and proposed fees, or whether to remove the designation in the case of an established RPP area. The traffic and parking commission shall approve or disapprove the recommendation of the chief traffic engineer.

D. All RPP areas approved by the traffic and parking commission shall become part of Schedule VII of the Traffic and Parking Code of the traffic and parking commission of the Metropolitan Government of Nashville and Davidson County. (Amdt. 1 to Ord. BL2018-1329 § 1, 2018; Ord. BL2018-1329 § 1, 2018; Amdt. 1 with Ord. 99-1590 § 4, 1999; Ord. 93-562 § 4, 1993)

12.42.050 Implementation.

A. Once a residential permit parking area has been approved by the traffic and parking commission, the chief traffic engineer or his designee shall install parking signs on the streets designated as a residential permit parking area. The signs shall indicate the times under which parking shall be by permit only.

B. A permit shall be issued for a designated residential permit parking area upon application and payment of the applicable fee by a person eligible for such permit. Only persons who own or operate one or more motor vehicles and reside on property immediately adjacent to a street, avenue, or other location selected for implementation within the resident permit parking area shall be eligible to apply for a residential parking permit. Residents who own or reside on property immediately adjacent to a street, avenue, or other location selected for implementation within the residential permit parking area but do not own or operate a motor vehicle may nevertheless purchase from Public Works residential permit parking visitor's permits.

C. The application for a permit shall contain the name of the owner or operator of the motor vehicle; residential address; the make, model, color, registration and license plate numbers of the motor vehicle; and the

number of the drivers' license of the applicant. The motor vehicle registration and the driver's license of the applicant must be presented at the time of making said application in order to verify the contents thereof. The owner or operator of any motor vehicle applying for a residential parking permit shall have a valid Tennessee motor vehicle license plate; provided, if said applicant is enrolled as full-time student in a college or university within the area of the metropolitan government, then said applicant shall have a valid motor vehicle license plate issued by any state and proof of enrollment at such college or university. The motor vehicle registration must show the applicant's present address; provided, if the applicant is a full-time student, then said applicant must provide satisfactory proof or residence in the RPP area.

D. The permit shall be renewed annually upon such conditions and procedures and the chief traffic engineer shall specify. The permit shall display the motor vehicle license plate number. (Ord. BL2018-1329 § 2, 2018; Ord. 99-1590 § 5, 1999; Ord. 93-562 § 5, 1993)

12.42.060 Residential parking permit.

A. The holder of a residential parking permit shall be permitted to stand or park a motor vehicle for which a permit has been issued, in the residential permit parking area designated on the permit without being subject to the limitations imposed on vehicles lacking the permit, provided however, that parking is permitted. While a motor vehicle for which a residential parking permit has been issued is so parked, such permit shall be displayed on the extreme left hand corner of the dashboard (driver's side) so as to be clearly visible and able to be easily read through the windshield of the vehicle.

B. A residential parking permit shall not authorize the holder thereof to stand or park a motor vehicle in such places or during such times as the stopping, standing, or parking of motor vehicles is prohibited or set aside for specified types of vehicles, and shall not exempt the holder from the observance of any traffic regulation other than the parking limit.

C. A residential parking permit shall not guarantee or reserve to the holder thereof an on-street parking space within the designated residential permit parking area. (Ord. 99-1590 § 6, 1999; Ord. 93-562 § 6, 1993)

12.42.070 Exemption from residential permit parking area.

A. Service vehicles parking in residential parking areas while making service calls to residential dwellings within the area shall be exempt from the posted time limits. Such service vehicles shall display in the windshield on the driver's side of the vehicle a work slip showing the name and address of the residence being serviced.

B. Notwithstanding the provisions of subsection 12.44.085.E.6.f, free-floating car sharing vehicles displaying a free-floating car sharing permit in a clearly visible location on the vehicle determined by the department of public works shall be exempt from being subject to the limitations imposed on vehicles lacking a residential parking permit, provided however, that parking is permitted. (Ord. BL2015-1146 § 2, 2015; Ord. 99-1590 § 7, 1999; Ord. 93-562 § 8, 1993)

12.42.080 Residential parking permit fee.

The traffic and parking commission is authorized to establish by order an annual residential permit parking fee for each residential parking area to cover the administrative costs for the residential parking permit issued pursuant to this article. The permit fee must be approved by ordinance duly adopted by the metropolitan county council. An annual fee of ten dollars is approved. Upon presentation of adequate proof, persons sixty-five years of age or older who otherwise qualify for the permit shall be exempt from paying the permit fee. (Ord. 99-1590 § 8, 1999; Amdt. 1 to Ord. 93-562, 3/16/93; Ord. 93-562 § 9, 1993)

12.42.090 Residential permit parking visitor's permit.

In a residential permit parking area where parking spaces for visitors are not set aside on-street, residents of dwelling units located immediately adjacent to a street, avenue, or other location selected for implementation within the residential permit parking area shall be eligible to purchase two visitor's permits per residential address that will be valid for a calendar year. The application for the annual visitor permits shall identify the resident's name, address, and unit number, if applicable, and shall be assigned a unique identification number. Annual visitor passes shall not be transferable. Annual visitor permits that are lost or stolen shall be reported immediately to the department of public works and replacement annual visitor permit(s) shall be issued. The first lost or stolen visitor permit shall be replaced at no cost. Subsequent lost or stolen permits within the same calendar year shall be replaced at the cost of five dollars or the current cost of a visitor permit pass, whichever is greater.

In addition to two annual visitor permits, residents within the residential permit parking area may also purchase up to three short-term visitor parking passes which shall be valid for fourteen days and shall be renewable but not transferrable The application shall

identify the guest, the address that the guest will be visiting, as well as the guest's vehicle's make, model, and license plate number. The application shall also show the name and address of the host and shall be signed by the host. Permits for visitors shall be issued upon application unless the chief traffic engineer determines that adequate space is not available within that area. No permit holder shall be issued more than three visitors permits at any given time. (Ord. BL2018-1329 § 3, 2018; Ord. 99-1590 § 9, 1999; Ord. 93-562 § 10, 1993)

12.42.100 Misrepresentation by applicant for permit—Illegal use of permits.

A. It shall constitute a violation of this article for any individuals to falsely represent themselves as eligible for a residential parking permit or to furnish any false information in an application to the chief traffic engineer in order to obtain a residential parking permit.

B. No person other than the permittee named thereon shall use a residential parking permit or display it on a vehicle operated or parked, and any such use or display by a person other than the permittee shall constitute a violation of this section by the permittee shall constitute a violation of this section by the permittee and by the person who so used or displayed such parking permit. (Ord. BL2018-1329 § 1, 2018; Ord. 93-562 § 11, 1993)

12.42.110 Penalties.

(A) The chief traffic engineer is authorized to revoke the residential parking permit of any permittee found to be in violation of the provisions of this article and upon written notification thereof the permittee shall surrender such permit to the traffic and parking commission.

(B) Any violation of a provision of this article shall be punishable by a fine of not more than fifty dollars. (Ord. BL2010-793 § 13, 2010; Ord. 93-562 § 12(A), 1993)

12.42.115 University area residential lots eligible for individual residential permit parking.

A. For purposes of this section, a university or college is defined as any scholastic institution in which a student is, at a minimum eligible to receive a bachelor degree in science or art after completion of a multi-year curriculum.

B. For purposes of this section, "university area residential lot" means any lot within the area of the metropolitan government that has an erected and occupied single-family residence that is within six hundred feet of a public or private university or college.

C. Notwithstanding any other provision contained in this article to the contrary, a university area residential lot shall be eligible for. individual residential permit parking as set forth in this Article. The area to be eligible for residential parking shall be reduced to not less than 250 feet of frontage.

D. Except as otherwise provided in this section, all other requirements and provisions of this article shall apply to university area residential lots seeking residential permit parking. (Amdt. 1 with Ord. BL2003-1387 § 1, 2003)

Article II. Downtown Area Residential Permit Parking Program

12.42.120 Definitions.

As used in this article, the following words, terms and phrases shall have the meaning ascribed to them in this section, except when the context clearly indicates a different meaning:

"Downtown area" means that area of the metropolitan government as described by boundaries as provided in Section 10.20.390.

"Motor vehicles" means an automobile, truck, motorcycle or other motor-driven form of transportation.

"Person" means a natural person.

"Resident motor vehicle" means a Davidson County registered motor vehicle owned or leased by a resident of the residential permit parking area. (Ord. 93-584 § 1, 1993)

12.42.130 Downtown area permit parking authorized.

The traffic and parking commission is authorized to provide for the parking on public streets in the downtown area for motor vehicles bearing a valid parking permit issued pursuant to this article without payment of the required parking meter charges. This authority shall be in addition to, and may be exercised in conjunction with, any other authority the chief traffic and parking engineer or the traffic and parking commission may have to regulate the times and conditions of parking. (Ord. 93-584 § 2, 1993)

12.42.140 Implementation.

A. A permit shall be issued for the downtown area residential permit parking upon application and payment of the applicable fee by a person eligible for such permit. A person is eligible to apply for the downtown area residential parking permit if he owns or operates a

motor vehicle and resides on property located in the downtown area. Proof of residency in the downtown area must be presented at the time application is made.

B. The application for a permit shall contain the name of the owner or operator of the motor vehicle; residential address; the make, model, color, registration and license plate numbers of the motor vehicle; and the number of the driver's license of the applicant. The motor vehicle registration and the driver's license of the applicant must be presented at the time of making said application in order to verify the contents thereof. The owner or operator of any motor vehicle applying for a downtown area residential parking permit shall have a valid Tennessee motor vehicle license plate; provided, if said applicant is enrolled as full-time student in college or university within the area of the metropolitan government, then said applicant shall have a valid motor vehicle license plate issued by any state and proof of enrollment at such college or university. The motor vehicle registration must show the applicant's present address; provided, if the applicant is a full-time student, then said applicant must provide satisfactory proof of residence in the downtown area.

C. The permit shall be renewed annually upon such conditions and procedures as the traffic and parking commission shall specify. The permit shall display the motor vehicle license plate number. (Ord. 93-584 § 3 (part), 1993)

12.42.150 Downtown area residential parking permit.

A. The holder of a downtown area residential parking permit shall be permitted to stand or park a motor vehicle for which a permit has been issued, in the downtown area at legally permissible parking spaces, including those which have parking meters without being subject to payment of the required parking meter charges between the hours of six p.m. and nine a.m., Monday through Friday and all day Saturday and Sunday. While a motor vehicle for which a residential parking permit has been issued is so parked, such permit shall be displayed on the extreme left hand corner of the dashboard (driver's side) so as to be clearly visible and able to be easily read through the windshield of the vehicle.

B. A downtown area residential parking permit shall not authorize the holder thereof to stand or park a motor vehicle in such places or during such times as the stopping, standing, or parking of motor vehicles is prohibited or set aside for specified types of vehicles, and shall not exempt the holder from the observance of any traffic regulation other than the parking meter payments or time limits.

C. A downtown area residential parking permit shall not guarantee or reserve to the holder thereof an on-street parking space within the downtown area. (Ord. 93-584 § 3 (part), 1993)

12.42.160 Downtown area residential parking permit fee.

The traffic and parking commission is authorized to establish by order an annual downtown area residential permit parking fee to cover the administrative costs for the downtown area residential parking permit issued pursuant to this article. The permit fee must be approved by ordinance duly adopted by the metropolitan county council. An annual fee of twenty-five dollars approved. Upon presentation of adequate proof, persons sixty-five years of age or older who otherwise qualify for the permit shall be exempt from paying the permit fee. (Ord. 93-584 § 4, 1993)

12.42.170 Visitor's permit.

The holder of a downtown area residential parking permit may apply for a visitor's permit which shall be valid for three days and shall be renewable but not transferable. The application shall identify the guest, his address, and the vehicle's make, model, and license number. The application shall also show the permit number and the address of the host, and shall be signed by the permit holder host. Permits for visitors shall be issued upon application unless the chief traffic engineer determines that adequate space is not available within the downtown area. No permit holder shall be issued more than three visitors permits at any given time. (Ord. 93-584 § 5, 1993)

12.42.180 Misrepresentation by applicant for permit—Illegal use of permits.

A. It shall constitute a violation of this article for any person to falsely represent himself as eligible for a downtown area residential parking permit or to furnish any false information in an application to the chief traffic engineer in order to obtain a downtown area residential parking permit.

B. No person other than the permittee named thereon shall use a downtown area residential parking permit or display it on a vehicle operated or parked, and any such use or display by a person other than the permittee shall constitute a violation of this section by the permittee and by the person who so used or displayed such parking permit. (Ord. 93-584 § 6, 1993)

12.42.190 Penalties.

A. The chief traffic engineer is authorized to revoke the downtown area residential parking permit of any permittee found to be in violation of the provisions of this article and upon written notification thereof the permittee shall surrender such permit to the traffic and parking commission.

B. Any violation of a provision of this article shall be punishable by a fine of not more than fifty dollars. (Ord. BL2010-793 § 14, 2010; Ord. 93-584 § 7(A), 1993)

Chapter 12.44

PARKING METER ZONES

Sections:

12.44.010	**Parking meter zones—Establishment authority.**
12.44.015	**Use of contractors.**
12.44.020	**Meter design and installation specifications.**
12.44.030	**Method of parking in metered spaces.**
12.44.040	**Payment for parking—Time limits for use.**
12.44.050	**Use of slugs or substitute coins unlawful.**
12.44.060	**Tampering with or destroying meters unlawful.**
12.44.070	**Disabled driver parking in parking meter zones—Notice.**
12.44.075	**Free metered parking for clean technology vehicles.**
12.44.080	**Reserved.**
12.44.085	**Annually-paid metered parking for car-sharing organization vehicles.**

12.44.010 Parking meter zones—Establishment authority.

A. Parking meter zones are established upon those streets or parts described in Schedule VIII*.

B. The department of public works is authorized, subject to the approval of the traffic and parking commission by amendment of Schedule VIII,* to establish parking meter zones at other locations upon these streets or parts of streets where it is determined upon the basis of an engineering and traffic investigation that the installation of parking meters shall be necessary to aid in the regulation, control and inspection of the parking of vehicles. (Ord. BL2021-646 § 9, 2021; Amdt. 1 with Ord. 2002-1246 § 1, 2003; Ord. 93-575 § 4(s), 1993; prior code § 27-1-172)

* **Editor's note—**Schedule VIII is on file for public inspection at the offices of the metropolitan traffic and parking commission.

12.44.015 Use of contractors.

No contract providing for contractor enforcement of any of the provisions of this chapter shall have an initial term exceeding sixty months in duration. Any renewal or extension of the contract must be approved by an ordinance enacted by the metropolitan council. (Ord. BL2021-646 § 10, 2021)

12.44.020 Meter design and installation specifications.

A. 1. The department of public works, or its contractor, shall cause parking meters to be installed in the parking meter zones established as provided in this chapter upon the curb adjacent to, or located on the same block with, the designated parking space(s). Each meter shall be capable of being operated upon the receipt of payment for the full period of time for which parking is lawfully permitted in any such parking meter zone.

2. Alternatively, where so authorized by the traffic and parking commission, the department of public works or its contractor may charge for parking in an on-street parking space within the parking meter zone without a parking meter being installed and without using a parking meter, but by setting up a system where payments for parking in such spaces may be made by customers via a web-based application. Signs or paint markings shall be used to identify a particular space consistent with the information provided via the web-based application, and a receipt for payment for the parking shall be conveyed to the customer, electronically or by other means, so as to enable the customer to prove that he or she paid to park in that particular space.

B. Upon the expiration of the time period for which the customer paid to park, the customer shall be given adequate notice of the expiration of that period, by one or more of the following methods.

1. If there is a parking meter installed adjacent to the designated parking space, that parking meter shall be so designed, constructed, installed and set that, upon the expiration of the time period for which the customer had paid to park, it will indicate by an appropriate signal that the lawful parking meter period has expired, and during such period of time and prior to the expiration thereof, will indicate the interval of time remaining. If a parking meter on a block services multiple parking spaces, that parking meter shall be capable of displaying the status of each parking space serviced (i.e., whether it is expired, or if not, how much time remains of the period for which payment was made).

2. Spaces that are part of the parking meter zone but which do not have parking meters installed, and where payment for parking in those spaces is instead made via a web-based application described in subsection A.2. of this section, the customer shall be given adequate notice of the expiration of the period for which he or she has paid to park, by text message or by another means of

communication to which the customer has consented. (Ord. BL2021-646 § 11, 2021; Ord. 93-575 § 4(t), 1993; prior code § 27-1-173)

12.44.030 Method of parking in metered spaces.

No person shall park a vehicle in any designated parking meter space during the restricted and/or regulated time applicable to the parking meter zone in which such meter is located so that any part of such vehicle occupies more than one such space or protrudes beyond the markings designated by such space, except that a vehicle which is of a size too large to be parked within a single designated parking meter zone shall be permitted to occupy two adjoining parking meter spaces when coins shall have been deposited in the parking meter for each space so occupied as is required in this section for the parking of other vehicles in such space. (Prior code § 27-1-174)

12.44.040 Payment for parking—Time limits for use.

A. If any one of the following applies, no person shall park a vehicle in any parking space upon a street within a parking meter zone during the restricted and regulated time applicable to the parking meter zone in which such parking space is located, unless the applicable parking rate has been paid for the period of time for which said vehicle is parked in such parking space.

1. The parking space is located alongside of and next to a parking meter.

2. The parking space is located on a block where a parking meter servicing multiple parking spaces is installed and the parking space where the vehicle is parked has signs or markings indicating that payment is required to be made for parking in that space.

3. The parking space is a part of the parking meter zone whereby payment for parking in that space is made via a web-based application, such as is described in Section 12.44.020A.2., and the parking space where the vehicle is parked has signs or markings indicating that payment is required to be made for parking in that space.

B. If any one of the following applies, no person shall permit a vehicle within his or her control to be parked in any such parking space during the restricted and regulated time applicable to the parking meter zone in which such parking space is located, unless the applicable parking rate has been paid for the period of time for which said vehicle is parked in such parking space.

1. The parking space is located alongside of and next to a parking meter.

2. The parking space is located on a block where a parking meter servicing multiple parking spaces is installed and the parking space where the vehicle is parked has signs or markings indicating that payment is required to be made for parking in that space.

3. The parking space is a part of the parking meter zone whereby payment for parking in that space is instead made via a web-based application described in Section 12.44.020A.2., and the parking space where the vehicle is parked has signs or markings indicating that payment is required to be made for parking in that space.

C. No person shall park a vehicle in any such parking space for a consecutive period of time longer than that limited period of time for which parking is lawfully permitted in the parking meter zone in which such parking space is located, regardless of the amount of the payment made. If any vehicle shall remain parked in any such parking space beyond the parking time limit fixed for such parking space the customer shall be given adequate notice of the expiration of that period by one or more of the methods indicated in subsections C.1-C.2., below. The fact that notice has been given through one of the methods indicated below, shall be prima facie evidence that such vehicle has been parked overtime and beyond the period of legal parking time in any such part of a street where any such parking space is located, and shall be a violation of this section. Each period of overtime parking beyond the duration of that limited period of time, for which parking is lawfully permitted in the parking meter zone, in which such parking space is located, shall be considered a separate offense.

1. If there is a parking meter installed adjacent to the designated parking space, that parking meter shall be so designed, constructed, installed and set that, upon the expiration of the limited period of time for which parking is lawfully permitted in the parking meter zone in which such meter is located, it will display a sign or signal showing illegal parking. If a parking meter on a block services multiple parking spaces, that parking meter shall be capable of displaying the status of each parking space serviced (i.e., whether it constitutes illegal parking beyond the time limit fixed for such parking space).

2. In the case of spaces that are part of part of the parking meter zone but which do not have parking meters installed, and where payment for parking in those spaces is instead made via a web-based application described in Section 12.44.020A.2., the customer shall be given adequate notice by text message, or by another means of communication, to which the customer has consented, that the limited period of time for which parking is lawfully permitted in the parking meter zone,

in which such meter is located, has expired, and that continued parking in that space beyond that period constitutes illegal parking.

3. The provisions of this section shall not relieve any person from the duty to observe other and more restrictive provisions of this title and the State Vehicular Code prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times. (Ord. BL2021-646 § 12, 2021; prior code § 27-1-175)

12.44.050 Use of slugs or substitute coins unlawful.

No person shall deposit or attempt to deposit in any parking meter any slug, button or any other device or substance as substitutes for coins of United States currency. (Prior code § 27-1-176)

12.44.060 Tampering with or destroying meters unlawful.

No person shall deface, injure, tamper with, open or wilfully break, destroy or impair the usefulness of any parking meter or other related equipment. (Ord. BL2021-646 § 13, 2021; prior code § 27-1-177)

12.44.070 Disabled driver parking in parking meter zones—Notice.

The department of public works shall either post appropriate signage within parking meter zones or include a statement on each parking meter informing drivers that, pursuant to T.C.A. § 55-21-105, no parking meter fee is required for vehicles with a valid disabled driver license plate or placard. The foregoing does not entitle a vehicle with a valid disabled driver license plate or placard to park for a consecutive period of time exceeding any parking time limit applicable to the parking meter zone in question, without that violation being subject to penalty, in the form of the application of the fine for parking for a consecutive period of time, longer than that limited period of time, for which parking is lawfully permitted in the parking meter zone, in which such parking space is located. (Ord. BL2021-646 § 14, 2021; Ord. BL2010-650 § 1, 2010)

12.44.075 Free metered parking for clean technology vehicles.

A. For purposes of this ordinance, "clean technology vehicle" means a vehicle rated by the U.S. Environmental Protection Agency with a minimum Environmental Performance Score for both Greenhouse Gas and Air Pollution of 7, and a total combined score of 16 or higher. A vehicle's Environmental Performance Score can be determined by inputting the vehicle's information into the Green Vehicle Guide located at http://www.epa.gov/greenvehicles.

B. Notwithstanding the provisions of Section 12.44.040, no parking payment shall be required for a clean technology vehicle parked in a parking metered space located within the boundaries of the Downtown Central Business Improvement District, as designated by Section 2.177.010 of the Metropolitan Code, for a duration not to exceed the posted time limit on the meter if the vehicle is displaying a valid sticker issued by the Davidson County Clerk designating the vehicle as a clean technology vehicle. The county clerk shall determine the proper place on the vehicle to which the sticker is to be affixed so as to maximize visibility for the benefit of the parking patrol officers.

C. The Davidson County Clerk shall have the authority and responsibility for issuing clean technology vehicle stickers for qualifying motor vehicles. The clean technology vehicle stickers shall only be available for private passenger vehicles. Each sticker shall be valid for a period of one year and shall be issued at the time the motor vehicle is registered. The county clerk shall be entitled to collect an annual fee of ten dollars from the applicant for each clean technology vehicle sticker issued. All fees collected for the clean technology vehicle stickers shall be deposited in the general fund of the general services district to assist in offsetting the administrative costs incurred by the county clerk for issuance of the stickers and enforcement of the ordinance by the department of public works.

D. Every motor vehicle owner seeking to obtain a clean technology vehicle sticker shall complete a form supplied by the county clerk including the vehicle's year, make, model, and engine size, and whether the vehicle has a standard or automatic transmission. The county clerk's office shall determine eligibility for designation as a clean technology vehicle by inputting the vehicle's information into the Green Vehicle Guide located at http://www.epa.gov/greenvehicles.

E. The provisions of this section pertaining to the issuance of parking stickers for clean technology vehicles shall become effective July 1, 2011, and shall expire and be null and void on June 30, 2013, unless extended by resolution of the council of the Metropolitan Government of Nashville and Davidson County. This provision, commonly known as a "sunset provision," is included to ensure that the effectiveness and necessity of this section is reviewed by the metropolitan council after its adoption. In determining whether the provisions of this section should be extended, the council shall consider the following information: (1) the number of vehicles eligible for a clean technology vehicle sticker at the time

this section is enacted; (2) the number of clean technology vehicle stickers issued in fiscal years 2012 and 2013; (3) the measurable impact on air quality resulting from any increase in the number of clean technology vehicles within the area of the Metropolitan Government; and (4) the cost of enforcement and administration of this section. (Ord. BL2010-734 § 1, 2010)

Editor's note—Ord. BL2010-734, § 1, passed Dec. 21, 2010, set out provisions intended for use as § 12.44.070. At the editor's discretion, to prevent duplication of section numbers, these provisions have been included as § 12.44.075.

12.44.080 Reserved.

Editor's note—Ord. BL2021-646, § 15, passed April 20, 2021, repealed § 12.44.080, which pertained to free metered parking for vehicle owners that purchase carbon offsets and derived from Ord. BL2010-825 § 1, adopted 2011; Amdt. 1 to Ord. BL2010-825 § 1, adopted 2011.

12.44.085 Annually-paid metered parking for car-sharing organization vehicles.

A. For purposes of this section,

1. "Free-floating car sharing" means a system in which a fleet of vehicles is made available for use by members of a free-floating car sharing organization whereby: a) persons or entities that become members are permitted to use free-floating car sharing vehicles from the fleet on a limited, fee-per-use basis; b) free-floating car sharing vehicles may be parked in any on-street legal, available parking within the free-floating zone pursuant to meeting the standards and restrictions set forth in this section; and c) a separate written agreement is not required each time a member reserves or uses a vehicle from the fleet.

2. "Free-floating zone" or "FFZ" means a geographic area with a delineated boundary in which a free-floating car sharing vehicle may be parked in a legal, on-street space, to be approved by the traffic and parking commission.

3. "Free-floating car sharing permit" means a permit issued by the metropolitan department of public works to vehicles in a free-floating car sharing fleet that allows each free-floating car sharing vehicle to utilize the parking privileges authorized through the free-floating car sharing program as described below in subsections B and C.

B. Notwithstanding the provisions of Section 12.44.040, no contemporaneous parking payment shall be required for a vehicle with a free-floating car-sharing permit parked in a metered parking space located within the free-floating zone.

C. The department of public works shall have the authority and responsibility for issuing to car-sharing organizations free-floating car sharing permits for their vehicles permitted as such. The free-floating car sharing permits shall only be available for passenger cars. Each permit shall be valid for a period of one year and the stickers shall be issued at the time the permit is issued. The department of public works shall be entitled to collect an annual fee from the applicant for each free-floating car sharing permit issued, to include an application fee for the administrative review and processing of the application and a permit fee calculated in a manner designed to compensate for the lost meter revenue, in an amount to be set by the traffic and parking commission, to be adjusted annually based on actual meter use in paid parking areas per subsection E.8., below. The portion of the permit fee for the free-floating car sharing permits that is designed to offset the administrative costs of processing the application shall be deposited in the general fund of the general services district to assist in offsetting the costs incurred by the department of public works for issuance of the permits. The portion of the permit fee for the free-floating car sharing permits that is designed to compensate for the lost meter revenue shall be deposited in the separate account earmarked for traffic and parking improvements consistent with the requirements of Charter Section 11.907.

D. Any applicant seeking a free-floating car sharing permit shall complete an application form and agreement in forms approved by the director of the department of public works, or his or her designee. The applicant car-sharing organization shall include a listing of the year, make, model, tag number and VIN number of each vehicle included in the organization's permit, as well as providing other information deemed necessary and appropriate by the department and shall update this list with the department within ten days of any change thereto. The department of public works shall determine eligibility for a permit as a car-sharing organization. Any denial of a permit by the department may be appealed to the traffic and parking commission.

E. Free-floating car sharing parking.

1. In order to qualify for the free-floating car sharing program as set forth in this section, all of the following standards must be met:

a. Permittee must obtain a free-floating car sharing permit for each free-floating car sharing vehicle by paying the free-floating car sharing permit fee to the department of public works;

b. Free-floating car sharing vehicles must be parked in the free-floating zone at the conclusion of each use as stated in the permit;

c. Each free-floating car sharing vehicle permitted by the department of public works shall display a permit and contact information, in a manner determined by the department of public works;

d. Each free-floating car sharing vehicle must be registered with the metropolitan department of public works free-floating car sharing program;

e. Free-floating car sharing permits are not transferable between vehicles and are void if transferred between vehicles;

f. Permittee shall comply with the terms of the free-floating car sharing permit;

g. Permittee shall move each free-floating car sharing vehicle within thirty-six hours of its being parked in any on-street parking space within the FFZ;

h. Permittee shall utilize on-street parking within the metropolitan government's rights-of-way in compliance with all applicable federal, state and metropolitan laws and regulations;

i. Permittee must demonstrate that the free-floating car sharing vehicles have the technical capacity to accurately track each permitted vehicle's actual meter use in paid parking areas, such as GPS or other technology, and provide regular reports to the department of public works to verify such use, which permittees shall certify under oath are correct; a false certification shall be cause for a revocation of all of the permittee's vehicle permits;

j. Permittee must make all records supporting the tracking of vehicles and any other relevant information relating to the reporting requirement described in section i., above, available for inspection by public works staff upon demand;

k. Permittee must execute an indemnification of the metropolitan government in a form approved by the department of law and submit it with its annual permit application; and,

l. A permittee must provide proof of insurance on an annual basis with the application in an amount and with policy terms satisfactory to the metropolitan director of insurance. The permittee must give the metropolitan director of insurance thirty days notice in advance of any change to or termination of permittee's insurance coverage.

m. A toll-free phone number staffed 24/7 that a holder of a residential parking permit can call to request that a free-floating car-sharing vehicle parked in a residential parking permit area be moved, or that any person can call to report that a free-floating car-sharing vehicle has been parked in any location or parked legally in any location for longer than thirty-six hours, shall be prominently displayed on each free-floating car-sharing vehicle at all times. Upon receipt of a call to this hotline, the permitted free-floating car-sharing vehicle service shall move its referenced free-floating car-sharing vehicle, if parked as described above, within three hours of receipt of the call.

2. Violations of any of the standards listed above in subsection E.1. shall constitute a basis for a suspension or revocation of the permittee's free-floating car sharing permits by the traffic and parking commission following notice to the permittee and a hearing before the commission.

3. The department of public works may issue up to the maximum number of allowed free-floating car share permits annually. The maximum number of free-floating car sharing permits allowed shall be established by the traffic and parking commission based on an analysis of available on-street parking spaces within the free floating car sharing area, and existing and anticipated future usage thereof. The traffic and parking commission may seek advice from the planning department as to anticipated future use of on-street parking.

4. Non-payment of outstanding meter usage fees by permittee pursuant to subsections C., above, and E.8., below, serves as a basis for the department of public works to deny renewal of annual permits and issuance of additional permits to the same permittee.

5. During all hours when it is otherwise lawful to park in specified parking spaces within the free-floating zone, free-floating car sharing vehicles that comply with this section may park for up to thirty-six hours in parking spaces regulated by a parking payment device without displaying a payment receipt or feeding the meter and without regard to posted time limits and in any other parking space in the public right-of-way not otherwise restricted for exclusive use.

6. Free-floating car sharing vehicles shall be prohibited from parking in the following zones or areas: a) zones designated as bus zones; b) loading and unloading zones; c) safety zones and fire lanes; d) taxicab stands; e) tow-away zones; f) exclusive permit-only parking areas; g) valet parking permitted locations; h) horse-drawn carriage stands; i) the footprint of any area subject to a special event permit; j) traffic restricted lanes; k) musicians' loading only areas; l) spaces designated as police parking only; m) reserved parking (bagged meters); n) food truck zones; and o) any other area where on-street parking is restricted by law.

7. Free-floating car-sharing vehicles shall be prohibited from parking in a parking space reserved for a person with a disability, unless the member of the free-floating car sharing organization utilizing the free-floating car sharing vehicle meets the criteria for special parking privileges under T.C.A. Section 55-21-101 et seq. and the disabled parking placard is obtained and

displayed as described in T.C.A. 55-21-103 for the duration of the time the free-floating car sharing vehicle is parked within the parking space reserved for a person with a disability.

8. Permittee must provide a report to the department of public works at an address specified in the free-floating car sharing permit that provides data showing actual paid parking meter use for each free-floating car share vehicle for the preceding year. The report shall be submitted not later than January 31 of each year. In the event a free-floating car sharing operator's total actual meter use in paid parking areas during the prior permit term exceeds the total paid for the prior permit period as provided in subsection C. of this section, above, the free-floating car sharing permittee shall reimburse metro for the difference no later than February 28 of each year. If the parking charges are found to be less during the prior permit term, the traffic and parking commission will issue the Permittee a credit for the following year by reducing the annual permit fee. Rates shall be adjusted higher or lower by the traffic and parking commission every year going forward based on the previous year's data.

9. The traffic and parking commission is further empowered to adopt regulations governing the provision of free floating car sharing services and interpreting the provisions of this section to the extent not inconsistent with this section. Violations of any such regulations adopted by the traffic and parking commission shall be enforceable in the same manner provided for in subsection E.2. above. (Ord. BL2015-1146 § 1, 2015)

Chapter 12.48

LOADING AND UNLOADING

Sections:

12.48.010	**Curb loading zones—Designation authority.**
12.48.020	**Curb loading zones—permit requirements.**
12.48.025	**Curb loading zone management program.**
12.48.030	**Standing in passenger curb loading zones.**
12.48.040	**Freight loading zones—Locations restrictions.**
12.48.050	**Freight loading zones—Use restrictions.**
12.48.060	**Public carrier stops and stands.**
12.48.070	**Bus and taxicab stands—Use conditions.**
12.48.080	**Bus and taxicab stands—Unlawful uses.**
12.48.090	**Bus benches and shelters—Transit Authority rights and powers.**

12.48.010 Curb loading zones—Designation authority.

The traffic and parking commission may establish passenger and freight loading zones and maintain signs indicating the same and stating the hours during which the provisions of this section are applicable at whatever locations it may determine to be appropriate, as set out in Schedule X.* (Prior code § 27-1-162)

* **Editor's note—**Schedule X is on file for public inspection at the offices of the metropolitan traffic and parking commission.

12.48.020 Curb loading zones—Permit requirements.

A. 1. The traffic and parking commission shall not designate or sign any curb loading zone upon special request of any person unless such person makes application therefor in writing on a form supplied by the commission. The commission, upon granting a permit and erecting such signs, shall collect from the applicant and deposit in the general fund a service fee in an amount to be set by the metropolitan traffic and parking commission.

2. Such fee is to cover the cost of establishing such loading zone and the erection of appropriate signs or standards indicating the same, and shall include maintenance for such signs for a period of one year from date of erection.

B. The establishment of a loading zone as the result of such special request, and upon the payment of such fees by the applicant, shall in no manner entitle the applicant to any rights in such loading zone superior to the use of the general public. As an exception to the preceding, however, the traffic and parking commission may, in regulations it adopts as part of its curb loading zone management program, under the authority delegated to it by Section 12.48.025, allow certain curb loading zone spaces to be designated for the exclusive use of some users, upon certain conditions being met, such as the payment of additional fees by those users.

C. All permits issued for such loading zones shall expire one year from date of erection of the signs. The commission shall not maintain any such sign after one year from the date of erection unless the owner, agent or lessee shall pay to the commission a fee of thirty dollars for each automobile space in advance annually for the maintenance of such signs. The commission shall remove such signs when the payment of yearly maintenance fee shall be thirty days in arrears. The commission may also remove any such sign whenever public convenience or necessity warrants the same after fifteen days' notice of such intended removal is given such owner, agent or lessee.

D. The fees required herein shall not apply to the erection of signs in front of or adjacent to any governmental building or in front of any theater, public or parochial school, place of worship, or any organization chartered by the state as a charitable institution.

E. A permit for a loading zone may be revoked at any time by the commission in case of misuse, or in case the commission finds that such zone is no longer necessary.

F. A permit for a loading zone is nontransferable. (Ord. BL2020-380 § 1, 2020; Ord. BL2017-654 § 10, 2017; Ord. 91-1624 § 1, 1991; prior code § 27-1-166)

12.48.025 Curb loading zone management program.

The traffic and parking commission shall establish a curb loading zone management program ("program"). The purpose of the program is to increase availability and efficiency of curb loading zones and reduce double parking by loading vehicles. The curb loading zone management program may include continuing to treat some curb loading zones as they always have been treated while identifying some specially designated curb loading zones to be subjected to special curb management regulations enacted pursuant to this section, for example allowing those specially designated curb loading zones to be limited to the exclusive use of some users, upon certain conditions being met, such as the

payment of additional fees by those users. The director of public works shall submit rules for this program to the traffic and parking commission for approval. The program rules may include:

(1) Establishing loading zone usage permits and fees;

(2) Determining minimum curb loading zone space requirements;

(3) Providing for enhanced enforcement, which may include the following:

(A) Dedicated enforcement personnel;

(B) Improved signage; and

(C) Automated enforcement;

(4) Determining eligibility for use of curb loading zones or specially designated curb loading zones;

(5) Providing for methods of payments of required fees; and

(6) Establishing requirements for monitoring loading zone performance and for adjusting usage rates, loading zone space requirements, and enforcement to improve performance. (Ord. BL2020-380 § 2, 2020)

12.48.030 Standing in passenger curb loading zones.

No person shall stop, stand or park a vehicle for any purpose or period of time other than for the expeditious loading or unloading of passengers in any place marked as a passenger curb loading zone during hours when the regulations applicable to such curb loading zone are effective, and then only for a period not to exceed an amount of time determined by the director of the department of transportation and multimodal infrastructure (NDOT), or his/her designee, to be appropriate based on the director's, or his/her designee's, professional traffic engineering judgment and investigation. Any time limits for passenger curb loading zones that are set by the NDOT director, or his/her designee, shall be clearly marked and posted on signs located within said zones. (Ord. BL2024-513 § 1, 2024; prior code § 27-1-163)

12.48.040 Freight loading zones—Location restrictions.

A. Freight loading zones will be established only where:

1. The applicant has no available off-street loading and unloading facilities or such facilities as are available are grossly inadequate;

2. Such loading is necessary to the conduct of the business of the applicant;

3. Such loading zone is in the interest of public convenience, welfare and safety;

4. The type of loading and unloading involves freight or merchandise too heavy or bulky to be conveniently carried by hand;

5. Existing street loading space is too inconvenient or far away for practical and efficient loading or unloading.

B. In no event shall more than one-half of the total curb length in any one block be reserved for loading purposes. (Prior code § 27-1-164)

12.48.050 Freight loading zones—Use restrictions.

No person shall stop, stand or park a vehicle for any purpose or length of time other than for expeditious unloading and delivery or pickup and loading of freight and merchandise marked as a freight loading zone during the hours when the provisions applicable to freight loading zones are in effect. The director of the department of transportation and multimodal infrastructure (NDOT), or his/her designee, may set time limits for loading and unloading in a freight loading zone, based upon professional traffic engineering judgment and investigation. Any time limits for freight loading zones that are set by the NDOT director, or his/her designee, shall be clearly marked and posted on signs located within said zones. (Ord. BL2024-513 § 2, 2024; prior code § 27-1-165)

12.48.060 Public carrier stops and stands.

The traffic and parking commission shall establish bus stops and bus stands for common carrier motor vehicles on such public streets, in such places and in such numbers as they shall determine to be of the greatest benefit and convenience to the public, and every such bus stop, bus stand, or other stand shall be designated by appropriate signs. (Prior code § 27-1-171)

12.48.070 Bus and taxicab stands—Use conditions.

A. The operator of a bus shall not stand or park such vehicle upon any street at any place other than a bus stand.

B. The operator of a bus shall not stop such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage other than at a bus stop, bus stand or passenger loading zone so designated, except in case of an emergency.

C. The operator of a bus shall enter a bus stop, bus stand or passenger loading zone on a public street in such manner that the bus, when stopped to load or unload passengers or baggage, shall be in a position with the right front wheel of such vehicle not further than

eighteen inches from the curb and the bus approximately parallel to the curb so as not to unduly impede the movement of other vehicular traffic.

D. The operator of a taxicab shall not stand or park such a vehicle upon any street at any place other than in a taxicab stand. This provision shall not prevent the operator of a taxicab from temporarily stopping in accordance with other stopping, standing or parking regulations at any place for the purpose of and while actually engaged in the expeditious loading or unloading of passengers. (Prior code § 27-1-169)

12.48.080 Bus and taxicab stands—Unlawful uses.

No person shall stop, stand or park a vehicle other than a bus in a bus stop or other than a taxicab in a taxicab stand when any such stop or stand has been officially designated and appropriately signed; except, that the driver of a passenger vehicle may temporarily stop therein while actually engaged in the loading and unloading of passengers when such stopping does not interfere with any bus or taxicab waiting to enter or about to enter such zone. (Prior code § 27-1-170)

12.48.090 Bus benches and shelters—Transit Authority rights and powers.

A. The Metropolitan Transit Authority, an agency of the Metropolitan Government of Nashville and Davidson County created by the Metropolitan Charter, Appendix Four, is given the sole power to place bus benches and bus shelters on the public rights-of-way within the area of the metropolitan government, subject to the approval of the department of planning, and the department of public works. There shall be no advertisement on any of these benches in any residential zoning district.

B. It is unlawful for any other person, corporation, partnership or entity to place or maintain bus benches and/or bus shelters on the public rights-of-way within the area of the metropolitan government.

C. The metropolitan transit authority is hereby given authority to remove any and all bus benches and/or bus shelters placed on the public rights-of-way within the area of the metropolitan government in violation of this section.

D. Any person, corporation, partnership or entity who violates this section shall be punishable as provided in Section 1.01.030 of the Metropolitan Code of Laws. (Ord. 95-1329 § 2 (part), 1995; Ord. 93-575 § 5, 1993; prior code § 27-1-171.1)

Chapter 12.52

PEDESTRIANS

Sections:

12.52.010	**Pedestrians to obey traffic regulations and traffic-control devices.**
12.52.020	**Pedestrian right-of-way in crosswalks—Driver responsibilities.**
12.52.030	**Use of right half of crosswalk.**
12.52.040	**Crossing where crosswalks not marked.**
12.52.050	**Right-of-way on sidewalks.**
12.52.060	**Pedestrians using white canes or sticks.**
12.52.070	**Blind pedestrians.**
12.52.080	**Pedestrians on highways and roadways.**
12.52.090	**Pedestrians to yield to authorized emergency vehicles.**
12.52.100	**Obedience to railroad signals.**
12.52.110	**Crossing in front of vehicles stopped to discharge passengers.**
12.52.120	**Driver responsibilities.**
12.52.130	**Soliciting rides or business prohibited.**
12.52.140	**Pedestrians under the influence of alcohol or drugs.**
12.52.150	**Use of motorized wheelchairs.**

12.52.010 Pedestrians to obey traffic regulations and traffic-control devices.

A. A pedestrian shall obey the instructions of any official traffic-control device specifically applicable to him, unless otherwise directed by a police officer.

B. Pedestrians shall be subject to traffic and pedestrian control signals as provided in Section 12.12.090.

C. At all other places, pedestrians shall be accorded the privileges and shall be subject to the restrictions stated in this title. (Prior code § 27-1-120)

12.52.020 Pedestrian right-of-way in crosswalks—Driver responsibilities.

A. When traffic-control signals are not in place or not in operation, the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be to so yield, to a pedestrian crossing the roadway within a crosswalk when the pedestrian crossing is upon the half of the roadway upon which the vehicle is traveling, or when the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger.

B. No pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield.

C. Subsection A of this section shall not apply under the conditions stated in subsection B of Section 12.12.090.

D. Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle. (Prior code § 27-1-121)

12.52.030 Use of right half of crosswalk.

Pedestrians shall move, whenever practicable, upon the right half of crosswalks. (Prior code § 27-1-124)

12.52.040 Crossing where crosswalks not marked.

A. Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway.

B. Any pedestrian crossing a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the roadway.

C. Between adjacent intersections at which traffic-control signals are in operation, pedestrians shall not cross at any place except in a marked crosswalk.

D. No pedestrian shall cross a roadway intersection diagonally unless authorized by official traffic-control devices and, when authorized to cross diagonally, pedestrians shall cross only in accordance with the official traffic-control devices pertaining to such crossing movements. (Prior code § 27-1-122)

12.52.050 Right-of-way on sidewalks.

A. The driver of a vehicle shall yield the right-of-way to any pedestrian on a sidewalk.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (56), 1990; prior code § 27-1-129)

12.52.060 Pedestrians using white canes or sticks.

A. It is unlawful for any person except persons wholly or partially blind to carry or use on the public streets of the metropolitan government any canes or walking sticks which are white in color with a red end.

B. It is the duty of all drivers of motor vehicles, when approaching a person carrying a cane or walking stick white in color with a red end, to immediately come to a full stop and yield the right-of-way to said person.

C. Section 12.84.020 sets out the penalty for violation of subsection B of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (58), 1990; prior code § 27-1-131.1)

12.52.070 Blind pedestrians.

A. The driver of a vehicle shall yield the right-of-way to any blind pedestrian carrying a clearly visible white cane or accompanied by a guide dog.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (57), 1990; prior code § 27-1-131)

12.52.080 Pedestrians on highways and roadways.

A. Where a sidewalk is provided and its use is practicable, it is unlawful for any pedestrian to walk along and upon an adjacent roadway.

B. Where a sidewalk is not available, any pedestrian walking along and upon a highway shall walk only on a shoulder, as far as practicable from the edge of the roadway.

C. Where neither a sidewalk nor a shoulder is available, any pedestrian walking along and upon a highway shall have the right-of-way and shall walk as near as practicable to an outside edge of the roadway and, if on a two-way roadway, shall walk only on the left side of the roadway.

D. Where neither a sidewalk nor a shoulder is available, any pedestrian walking on the left side of a two-way public roadway in a residential area shall have the right to the use of a three foot section of the street measured from the edge of the street and shall have the right-of-way thereon.

E. Vehicle drivers, when overtaking and passing in either direction a pedestrian complying with subsection D, shall leave a distance of at least three feet from the pedestrian. Under these conditions, the vehicle driver shall also slow to a reasonable speed and drive with reasonable and due care to ensure the safety of all road users.

F. Except as otherwise provided in this title, any pedestrian upon a roadway shall yield the right-of-way to all vehicles upon the roadway.

G. Any person violating any of the provisions of this section shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than twenty-five dollars nor more than fifty dollars. Each violation of this section shall be deemed a separate offense. (Ord. BL2017-740 § 1, 2017; prior code § 27-1-125)

12.52.090 Pedestrians to yield to authorized emergency vehicles.

A. Upon the immediate approach of an authorized emergency vehicle making use of an audible signal and/or visual signals or of a police vehicle properly and lawfully making use of an audible signal only, every pedestrian shall yield the right-of-way to the authorized emergency vehicle.

B. This section shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway, nor from the duty to exercise due care to avoid colliding with any pedestrian. (Prior code § 27-1-130)

12.52.100 Obedience to railroad signals.

No pedestrian shall pass through, around, over or under any crossing gate or barrier at a railroad crossing while such gate or barrier is closed or is being opened or closed. (Prior code § 27-1-128)

12.52.110 Crossing in front of vehicles stopped to discharge passengers.

No person shall cross any street within ten feet of the front of any vehicle which has stopped momentarily to load or discharge passengers, except in compliance with the direction of a police officer or a traffic signal. (Prior code § 27-1-127)

12.52.120 Driver responsibilities.

A. Notwithstanding other provisions of this title, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway and shall give warning by sounding the horn when necessary and shall exercise proper precaution upon observing any child or any obviously confused or incapacitated person upon a roadway.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (55), 1990; prior code § 27-1-123)

12.52.130 Soliciting rides or business prohibited.

A. No person shall stand in a roadway for the purpose of soliciting a ride.

B. No person shall stand on a highway, roadway, or public street or alley for the purpose of soliciting employment, business or contributions from the occupant of any vehicle.

C. No person shall stand on or in proximity to a street or highway for the purpose of soliciting the watching or guarding of any vehicle while parked or about to be parked on a street or highway. (Prior code § 27-1-126)

12.52.140 Pedestrians under the influence of alcohol or drugs.

It is unlawful for a pedestrian who is under the influence of alcohol or any drug to a degree which renders himself a hazard to walk or be upon a highway except on a sidewalk. (Prior code § 27-1-132)

12.52.150 Use of motorized wheelchairs.

Persons with a mobility impairment operating a motorized wheelchair or similar vehicle not exceeding one thousand pounds gross weight are subject to all regulations, and privileges, provided by this chapter to any other pedestrian. (Ord. BL2007-1308 § 1, 2007)

Chapter 12.54

HORSE-DRAWN CARRIAGES

Sections:

12.54.010 Definitions.

Article I. Certificate of Public Convenience and Necessity—Horse-Drawn Carriage Service

12.54.020 Required and term.
12.54.030 Application information and fees.
12.54.040 Issuance and denial.
12.54.050 Limitations and amendments.
12.54.060 Change of ownership or address.
12.54.070 Disciplinary action.
12.54.080 Operation of horse-drawn carriage after suspension.
12.54.090 Appeals.
12.54.100 Insurance required.
12.54.110 Records and reports.

Article II. Driver's Permit

12.54.120 Permit required—Violations and term.
12.54.130 Application—Information and fees required.
12.54.140 Criminal background investigation.
12.54.141 Application approval or disapproval.
12.54.142 Issuance—Contents.
12.54.143 New application after denial.
12.54.144 Expiration—Issuance and replacement fee.
12.54.145 Suspension, revocation, and appeal.
12.54.146 Revocation of a valid driver's license.
12.54.150 Fees.
12.54.160 Reserved.
12.54.170 Issuance—Permit to be posted.
12.54.175 Hospitality training program—Participation required.
12.54.180 Reserved.
12.54.190 Unpermitted drivers.
12.54.200 Conduct of drivers.
12.54.210 Alcohol in horse-drawn carriage.
12.54.220 Return of passengers' property.
12.54.230 Rates of fare.

Article III. Horses, Carriages and Equipment

12.54.240 Requirements for horses in service.
12.54.250 Examination of horses.
12.54.260 Carriage and equipment.
12.54.270 Animal working conditions.

Article IV. General Regulations

12.54.280 Fees.
12.54.290 Non-transferability.
12.54.300 Accidents.
12.54.310 Approved routes and zones.
12.54.320 Hours of operation.
12.54.330 Enforcement by police department.
12.54.340 Penalties.
12.54.350 Complaint procedure.

12.54.010 Definitions.

"Carriage permit" means a permit issued by the commission for an animal-drawn carriage to transport persons.

"Certificate holder" means a person, company, corporation or association which has applied for, and been granted, a certificate of public necessity and convenience.

"Certificate of public convenience and necessity" (as it relates to this chapter) means a license granted, upon application and approval, by the transportation licensing commission for the sole purpose of authorizing the certificate holder to provide transportation through an animal-drawn carriage and may hold one or more permits as defined under this section.

"Commission" (unless otherwise described) means the metropolitan transportation licensing commission as established by the metropolitan code.

"Commission director" means the director/executive secretary of the transportation licensing commission, as employed by the metropolitan department of public works on behalf of the commission.

"Commission inspector" means an employee of the metropolitan department of public works engaged by that department on behalf of the metropolitan transportation licensing commission, authorized and trained to inspect horses and horse-drawn carriages, and/or taxicabs, wreckers, limousines, sedans and other passenger vehicles for hire.

"Driver permit" means a permit issued by the commission to drive and operate a horse-drawn carriage.

"Metro" means the Metropolitan Government of Nashville and Davidson County.

"MTLC staff" means the employees assigned to assist and support the metropolitan transportation licensing commission.

"Permittee" means a holder of any permit issued under this chapter.

"Traffic and parking commission" means the metropolitan traffic and parking commission as established by the Metropolitan Charter and Code of Laws. (Ord. BL2019-1657 § 1, 2019; Ord. BL2012-281 § 3, 2012; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

Article I. Certificate of Public Convenience and Necessity—Horse-drawn Carriage Service

12.54.020 Required and term.

No horse-drawn carriage shall be used or operated on a for hire basis by any person in the territorial jurisdiction of the metropolitan government without an owner or operator having first obtained a certificate of public convenience and necessity. Each certificate shall be valid for one year and shall be subject to renewal pursuant to the provisions set forth in this article. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.030 Application information and fees.

A. Upon application (on a form devised by the commission director) and the payment of a fee of five hundred dollars, a person may be issued an annual certificate to operate a horse-drawn carriage business subject to the approval of the commission.

B. All applications for a certificate of public convenience and necessity shall set forth:

1. Name, home address, telephone number, date of birth, and social security number of the applicant(s);

2. Business name (D/B/A), business address and telephone number if different from above;

3. A list of current drivers employed by the business, with each driver's permit number indicated;

4. The form of business of the applicant, i.e. corporation, partnership, sole proprietor. If the business is a corporation or any other form of association, a copy of the documents establishing the business and the name, address, and citizenship of each person with a direct interest in the business;

5. A description of any past business experience of the applicant, particularly in providing horse-drawn carriage services. Identification and description of any revocation or suspension of operating authority imposed by any government against any license or permit held by the applicant before the date of filing the application and any litigation related to the operation of the business and accidents involving injury to persons or animals;

6. The number and description of carriages the applicant proposes to use in the operation of the service, including any identifying characteristics such as color, style and other markings;

7. The number of horses the applicant proposes to use in the operation of the service along with a description and four separate and unobstructed color photographs of each animal (front, each side and rear), and a statement (not more than thirty days old) by a veterinarian certified by the State of Tennessee documenting that the horse has been examined and is approved as serviceable for its use in a carriage rental business and that there has been formulated and implemented a health maintenance plan for each horse. The commission director or the MTLC staff may require completion of any necessary forms to implement this part;

8. A description of the proposed service, including routes, rates or fares to be charged, and schedules, where applicable;

9. Documentary evidence from an authorized insurance company indicating a minimum of one million dollars liability insurance held by the applicant as required by this chapter;

10. The financial ability and responsibility of the applicant as reflected by a certified financial statement or, if an association, a full and complete statement of the amounts to be contributed monthly or annually by each member, insurance coverage to be provided, and other pertinent facts which may be required by the commission, the commission may by rule designate a specific financial statement to be submitted;

11. Whether the applicant has been convicted, pled guilty, placed on diversion, probation or parole, or pled nolo contendere within a period of five years prior to the date of application for violation of any of the following criminal offenses under any local, state or federal law: homicide, rape, aggravated assault or battery, domestic abuse or assault, kidnapping, robbery, burglary, child molestation, any sex-related offense, leaving the scene of an accident, criminal solicitation, or any offense related to cruelty to animals or criminal attempt to commit any of above, perjury or false swearing in making any statement under oath in connection with the application for a certificate, or the felony possession, sale or distribution of narcotic drugs or controlled substances. If, at the time of application, the applicant is charged with any such offenses, consideration of the application shall be deferred until entry of a plea, conviction, acquittal, dismissal, or other final disposition of the charges. The MTLC staff shall check the National Sex Offender Database to verify whether the

applicant is listed on the database. Any applicant listed on the database shall be disqualified for eligibility to hold a certificate.

12. Documentary evidence of payment of ad valorem taxes owed on the real and personal property to be used in connection with the operation of the proposed service if the business establishment is located in the metropolitan government area;

13. Any additional information, including business references, strategic plans and similar information, as the applicant desires to include to aid in the determination of whether the requested operating authority should be granted;

14. Any additional information the commission director or the MTLC staff considers necessary to assist or promote the implementation or enforcement of this chapter or the protection of the public safety. (Ord. BL2019-1657 §§ 2—5, 2019; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.040 Issuance and denial.

A. Upon receipt of an application for a certificate, the commission shall issue such certificate valid for one year if it finds that the applicant meets all requirements of this article.

B. In determining whether or not a certificate of public convenience and necessity should be issued, the commission shall give weight and due regard, among other things, to:

1. The number of horse drawn carriages already in operation; whether existing service is adequate to meet the public need; the character, experience, financial condition and responsibility of the applicant, and such criteria as may be adopted by the commission in its rules.

C. If the commission finds that a certificate should be issued to an applicant for the operation of a horse-drawn carriage, the applicant will be issued a permit for each carriage.

D. The owner, operator, or custodian of a horse engaged in a horse-drawn carriage service shall have a valid certificate available for immediate inspection by the commission director or a designee, commission inspector, a police officer, or an animal control officer at all times when a horse is on any street or public byway.

E. If the commission director determines that the requirements of this chapter have not been met, and/or that an applicant should be denied operating authority, he or she shall notify the applicant in writing that the application is denied and include in the notice the reason for denial and a statement informing the applicant of the right of appeal to the commission.

F. The commission may determine by rule the date upon which permits will expire. (Ord. BL2019-1657 § 6, 2019; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.050 Limitations and amendments.

A. A certificate must state on its face that it is for the exclusive purpose of operating a for-hire horse-drawn carriage service within the metropolitan government area. It may also contain other conditions and limitations deemed necessary by the commission, including, but not limited to:

1. Number and description of vehicles authorized;

2. Number and description of horses to be used;

3. Number of passengers that may be safely transported in each vehicle, based on the size of the vehicle and the type of horse pulling the vehicle;

4. Places for loading or unloading passengers;

5. Hours of operation and/or schedules and routes to be followed;

6. Operating procedures;

7. The use of special safety equipment;

8. The use of special sanitary devices and special care procedures;

9. Special conditions or limitations.

B. A certificate holder commits an offense if he or she fails to comply with the conditions or limitations placed on the operating authority under which he or she is operating the horse-drawn carriage.

C. Approval of temporary changes in authorized zones and hours of operation of a horse-drawn carriage must be requested from the traffic and parking commission or its designee at least five business days before being implemented. (Ord. BL2019-1657 §§ 7—9, 2019; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.060 Change of ownership or address.

A. If a certificate holder changes address or telephone number of the service, the certificate holder shall immediately notify the commission director. Failure to do so may result in disciplinary action.

B. If there is a change of ownership or title to any carriage for the operation of which a certificate has been issued under this article, the certificate holder shall have the right to substitute within thirty days after sale, destruction or elimination of the carriage, another carriage of the same or similar type and construction and receive a new carriage identification sticker if the permittee complies with all other requirements of this article, subject to inspection.

C. Change of ownership shall automatically revoke such certificate and the certificate shall be destroyed or returned to the commission.

D. Before any changes of licensed carriages, including additional carriages, horses or drivers or new ownership or address, shall be approved, the certificate holder shall file an amended certificate of insurance with the commission director indicating that the coverage required by this section is in force. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.070 Disciplinary action.

A. The commission or the commission director may place on probation, suspend, fine or revoke a certificate if it is determined that the certificate holder, certificate holder's employee, or any driver operating on behalf of the certificate holder, has:

1. Made a false statement in the application;

2. Made a false statement under oath during a disciplinary hearing before the transportation licensing commission;

3. Failed to comply with provisions of this chapter;

4. Operated a service not authorized by the certificate;

5. Failed to comply with the conditions and limitations of the certificate;

6. Been convicted of a violation of local, state, or federal law, that indicates a lack of fitness of the permittee to perform a passenger transportation service;

7. Been convicted of any felony offense while holding the permit;

8. Failed to qualify for a certificate under any section of this chapter;

9. Operated without appropriate permits and licenses issued by any other governmental entity;

10. Engaged in conduct detrimental to the public safety;

11. Been convicted of any offense involving driving while intoxicated; or

12. Engaged in conduct unbecoming of a holder of a certificate of convenience and necessity.

13. If the certificate holder, certificate holder's employee, or any driver operating on behalf of the certificate holder commits an act in violation of the Criminal Code or Metropolitan Code of Laws and the commission director determines that certificate holder or his/her company poses a threat to public safety or animal welfare, the commission director may enact an emergency suspension of the certificate to remain in effect until the certificate holder has the opportunity to be heard by the commission at the next available commission meeting, but in no circumstance later than sixty days from the date of the emergency suspension.

B. Any certificate holder convicted of a violation of this chapter or any other local, state or federal law concerning the treatment of animals shall be denied a certificate under this chapter, or such conviction shall form the basis for the suspension or revocation of any certificate granted under this chapter.

C. The commission director shall notify the certificate holder in writing with a notice of the proposed action to be taken and the general basis for the proposed action along with the date, location and time of a "show-cause hearing" to take place before either the commission director or the commission. The certificate holder shall have an opportunity to be heard by the commission director or the commission before the imposition of any probation, suspension or revocation. (Ord. BL2019-1657 §§ 10, 11, 2019; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.080 Operation of horse-drawn carriage after suspension.

A. After receipt of notice of suspension, revocation, or denial of certificate renewal, the certificate holder shall, on the date specified in the notice, discontinue driving a horse-drawn carriage for hire inside the metropolitan government area and shall surrender the written certificate to the commission director.

B. If the certificate holder appeals the suspension or revocation under this section, the certificate holder may continue to operate the horse-drawn carriage pending the appeal unless:

1. The certificate of the certificate holder is suspended pursuant to subsection regarding felony arrest or violation of DUI laws;

2. The commission director determines that continued operation by the certificate holder would impose an immediate threat to public safety. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.090 Appeals.

A. Any person whose application for a certificate or renewal of a certificate is denied by the commission director may file a written appeal with the commission within ten days. If an appeal is not made to the commission within ten days of the commission director's decision, the director's decision shall be final. A letter addressed to the commission and delivered to the commission office stating that an appeal from the decision of the commission director is desired shall perfect such appeal. The commission, as soon as possible after receiving such notice of appeal, shall notify the applicant or certificate holder of the date and time of the hearing. The hearing shall be at least five days after the mailing of such notice. After the hearing of the appeal, the commission shall sustain, modify or reverse the findings of the commission director, and shall notify the commis-

sion director and the applicant or certificate holder of its findings. The findings of the commission shall be final, subject to any applicable legal processes.

B. An applicant or association who has been denied a certificate or license by the commission director, and such denial has been upheld by the commission or not appealed to them, shall not be allowed to make another application for one year from the date of the denial. (Ord. BL2019-1657 § 12, 2019; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.100 Insurance required.

A. Before any certificate shall be issued by the commission director, or before the renewal of such certificate shall be granted, the applicant or association shall be required to file an insurance policy and/or certificate of insurance with the commission director evidencing insurance coverage as required in this section.

B. Insurance coverage as provided in subsection (A) of this section means a policy of public liability insurance issued by an insurance company qualified to do business in the state and naming the metropolitan government as an additional insured. Any policy of public liability insurance issued in compliance with this article shall be for a term of not less than one year, and for any horse-drawn carriage insured there under shall afford protection to any third party sustaining injury or damage as a result of the negligent operation of any horse-drawn carriage, with the minimum amount of insurance to be one million dollars, known as combined single limit insurance coverage. Such policy shall expressly provide that it may not be canceled, except after thirty days written notice to the commission director.

C. Such certificate will certify that the policy provides for a minimum of one million dollars per carriage for liability imposed by law for damages on account of bodily injuries, death or personal damages, other than injuries, death or property damages of the company or driver, in any one accident resulting from the ownership, maintenance or use of such carriage. The certificate of insurance shall also list the serial number or identification number of each carriage that is insured.

D. The operation of any horse-drawn carriage within metro without having in force the public liability insurance policy as outlined in this section is hereby declared to be a violation of this article, subjecting the owner and/or certificate holder to all applicable penalties provided in this article and this chapter.

E. Any changes must be reported to the commission immediately. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.110 Records and reports.

A. Each certificate holder shall maintain at a single location business records of its horse-drawn carriage business. The records must be maintained in a manner approved by the commission director and contain the following information:

1. An identification of the carriage used for each trip;

2. The number of trips made by each carriage on a daily basis;

3. An identification of the horse used for each trip and a statement of the periods of work and rest for each horse; and

4. Any other information the commission director determines necessary for monitoring the activities, operations, service, and safety record of the licensee.

B. A certificate holder shall make its records available for inspection by the commission director, commission inspector or designated officials. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

Article II. Driver's Permit

12.54.120 Permit required—Violations and term.

A. No person shall drive or otherwise operate a carriage engaged in the for-hire horse-drawn carriage service unless he or she has a driver's permit. To qualify for a permit, an applicant must comply with all of the requirements and stipulations of this chapter and any rules and regulations adopted by the commission.

B. A person commits an offense if he or she operates a horse-drawn carriage for-hire in the metropolitan government without a driver's permit issued by the commission.

C. A business commits an offense if it employs or otherwise allows a person to operate a horse-drawn carriage owned, controlled, or operated by the permittee unless the person has a driver's permit issued by the commission.

D. Each permit shall be valid for one year and shall be subject to renewal pursuant to the provisions set forth in this article. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.130 Application—Information and fees required.

A. An application for a horse-drawn carriage driver permit shall be filed with the commission and shall comply with regulations set forth by the commission or the commission director.

B. Such application shall be certified under oath and shall at a minimum contain the following information:

1. The name, residential address, telephone number and date of birth of the applicant. No applicant under twenty-one years of age will be accepted.

2. The type(s) of vehicle(s) which the applicant will drive under the certificate.

3. Any other request for information the commission director considers necessary or relevant.

C. The applicant shall provide copies of the following documents in order to submit his application:

1. A valid Tennessee driver license that complies with all applicable requirements of state law as further specified in rules to be adopted by the commission.

2. A Social Security card or birth certificate.

3. If a resident alien, a current work permit or other valid United States Immigration and Customs Enforcement document.

4. On forms provided by the commission director, the applicant will provide a statement under penalty of perjury of their physical and mental fitness to act as a for-hire driver as well as provide such other information as may be reasonably required by regulation promulgated by the commission pursuant to this chapter.

5. Certification that the driver has completed the certificate holder's mandatory driver training program approved by the commission director.

D. Each application shall be accompanied by an official driver record issued by the Tennessee Department of Safety, no more than thirty days previous to the date of application. All applicants are required to meet the following standards:

1. No convictions in the last five years for any of the following offenses involving bodily injury or death and no convictions in the last three years for any of the following offenses not involving injury or death:

- Driving under the influence of an alcoholic beverage or drug;
- Reckless driving.

2. For an initial permit, no more than three moving violations within the last three years and no more than two moving violations in the last year.

3. For a renewal permit, no more than four moving violations within the last three years and no more than two moving violations in the last year.

E. The commission or commission director may place on probation, suspend, fine or revoke a driver's permit if it is determined that the permitee made a false statement on his/her application. (Ord. BL2019-1657 § 13, 2019; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.140 Criminal background investigation.

A. Upon receiving an application for a driver's permit from an applicant, the applicant must undergo an identification and background check as required by state law as more specifically provided by rules or regulations adopted by the commission. Upon receipt of the background check report, the commission director shall determine whether the applicant's background check disqualifies him or her from eligibility for a driver's permit.

B. Additionally, certificate holder shall check the National Sex Offender Database to verify whether the applicant is listed on the database, and shall certify under oath to the commission that it has conducted this check and verified that the applicant does not appear on the database. Any applicant listed on the database shall be disqualified for eligibility for a driver's permit.

C. Any applicant shall, in addition to any disqualifications listed elsewhere in this chapter, be disqualified if the applicant:

1. Has been convicted, pleaded guilty, nolo contendere or conditionally plead guilty pursuant to T.C.A. § 40-35-313 within a period of three years prior to the date of application for violation of any of the following criminal offenses under the laws of Tennessee, any other state, or the United States of America:

- Homicide,
- Rape,
- Aggravated assault,
- Kidnapping,
- Robbery,
- Burglary,
- Child sexual abuse,
- Any sex-related offense,
- Criminal solicitation, or criminal attempt to commit any of the above,
- The felony possession, sale or distribution of narcotic drugs or controlled substances.

2. If, at the time of the application, an otherwise qualified applicant has been convicted of any of the above listed offenses, the commission director shall take the application before the commission for approval.

3. If, at the time of application, the applicant is charged with any offenses in 1. above, consideration of the application shall be deferred until entry of a plea, conviction, acquittal, dismissal, or other final disposition of the charges.

4. Has been convicted for a period of two years prior to the date of application of the violation of two or more sections of this Code or other ordinances governing the operation of vehicles for hire.

5. Has failed to disclose any criminal conviction, except traffic citations, on the application for a permit. (Ord. BL2019-1657 § 14, 2019; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.141 Application approval or disapproval.

Upon disapproval of a driver permit application by the commission director, applicants may file an appeal with the commission within thirty days of denial and request an appearance before the commission. The appeal shall be heard by the commission at the next available commission meeting with the appellant appearing in-person for consideration of the application. (Ord. BL2019-1657 § 15, 2019)

12.54.142 Issuance—Contents.

Upon approval of an application for a driver's permit, the certificate holder shall certify under oath to the commission director that the application is complete and accurate prior to issuing a permit to the applicant, in a form approved by the commission director. (Ord. BL2019-1657 § 16, 2019)

12.54.143 New application after denial.

Upon denial of an application for a driver's permit, no new application shall be considered for a period of three months. (Ord. BL2019-1657 § 17, 2019)

12.54.144 Expiration—Issuance and replacement fee.

A. Each driver's permit shall be issued for a period of one year. All permits issued under the provisions of this chapter shall expire March 1st of the year following the date on which the permit was issued. All certificates may be renewed by the MTLC director for each successive year. A renewal fee for each approved certificate and other licensing fees shall be charged at the annual renewal of the certificate.

B. A permit may be issued to qualified applicants for driver permits upon the payment of an amount to be established by the commission to cover the costs of investigation and of a random sampling of the permit applications by the commission director. A fee in an amount to be established by the commission shall be charged for all replacement driver permits. Every driver shall at all times conspicuously display a permit on the clothing of the driver's upper body. A driver shall allow a customer, MTLC staff or a police officer to examine the permit upon request. (Ord. BL2019-1657 § 18, 2019)

12.54.145 Suspension, revocation, and appeal.

A. The commission or the commission director is authorized to suspend, fine, revoke, otherwise restrict, or not renew any driver's permit issued under this article for failing or refusing to comply with the provisions of this chapter or the commission rules and regulations. Upon suspension, revocation, or other restriction of any driver's permit by the commission director, appeals can be made to the commission by filing a written request within thirty days of the action being appealed.

B. If the driver commits an act in violation of the Criminal Code or the Metropolitan Code of Laws and the commission director determines that driver poses a threat to public safety or animal welfare, the commission director may enact an emergency suspension of the driver's permit to remain in effect until the driver has the opportunity to be heard by the commission at the next available commission meeting, but in no circumstance later than sixty days from the date of the emergency suspension.

C. A driver whose permit is revoked by the commission or commission director may not reapply for ninety days from the date of revocation and will be treated as a new applicant. (Ord. BL2019-1657 § 19, 2019)

12.54.146 Revocation of a valid driver's license.

A driver's permit issued under this chapter shall be coterminous with the permittee's valid Tennessee driver's license. Any time that a permittee's driver's license is suspended, revoked, or cancelled, the permittee shall immediately self-report said action to the commission and the driver's permit shall likewise be immediately suspended, revoked, or cancelled. The driver's permit shall immediately be surrendered to the commission until such time as their driver's license is reinstated. (Ord. BL2019-1657 § 20, 2019)

12.54.150 Fees.

A. To obtain an annual horse-drawn carriage driver's permit, or renewal of the permit, a person must file with the commission director a completed written application on a form provided for the purpose and a nonrefundable application fee and a fee for a police records search. The commission is authorized to establish the fees necessary to fulfill this part. The commission director shall require each application to state such information considered necessary to determine whether an applicant is qualified.

B. All licenses shall expire annually on March 1, unless otherwise revoked, canceled or suspended.

C. The commission director may renew permits for each successive year before March 1 of each year. A renewal fee shall be charged for each permit issued. A fee shall also be charged for all replacement or temporary horse-drawn carriage driver permits. Such fees shall be in addition to the cost of any investigation, and the commission shall have the authority to set the fees by rule. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.160 Reserved.

Editor's note—Ord. BL2019-1657, § 21, adopted July 2, 2019, repealed § 12.54.160, which pertained to investigation of applicant and derived from Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002.

12.54.170 Issuance—Permit to be posted.

A. Upon approval of an application for a horse-drawn carriage driver's permit, the commission director shall issue a permit to the applicant, which shall bear the name, address, age, weight and other information deemed appropriate.

B. Every driver shall at all times conspicuously display a permit either on the clothing of the driver's upper body or upon the carriage. A driver shall allow the commission director, commission inspector, animal control officer or a police officer to examine the license upon request. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.175 Hospitality training program—Participation required.

A. Beginning July 1, 2019, every newly licensed horse-drawn carriage driver shall have attended an approved hospitality program prior to receiving a driver's permit.

B. Beginning July 1, 2019, every previously licensed horse-drawn carriage driver shall attend an approved hospitality training course or refresher course prior to applying for or renewal of a driver's permit each year. This course shall include updated information on any new MTLC regulations and safety requirements. (Ord. BL2019-1490 § 4, 2019)

12.54.180 Reserved.

Editor's note—Ord. BL2019-1657, § 22, adopted July 2, 2019, repealed § 12.54.180, which pertained to denial, suspension, revocation and appeal and derived from Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002.

12.54.190 Unpermitted drivers.

A. If any person is found operating any horse-drawn carriage for-hire within the metropolitan government area without a valid horse-drawn carriage driver's permit on behalf of any holder of a certificate of necessity and public convenience, the commission director may immediately take action to suspend or revoke the certificate of necessity and public convenience held by the operator of the horse-drawn carriage service.

B. A person whose horse-drawn carriage driver's permit is suspended shall not drive a horse-drawn carriage for-hire within the metropolitan government area during the period of suspension. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.200 Conduct of drivers.

A. A driver shall at all times:

1. Act in a reasonable, prudent, and courteous manner;
2. Not permit a person, other than an employee or the owner of the horse drawn carriage service to operate the carriage under the driver's control;
3. Not permit a person on the back of a carriage horse when the horse is under the driver's control;
4. Not leave a horse untethered or unattended except when confined to a stable or other enclosure;
5. Not permit a horse to drop excrement from its diaper;
6. Keep all carriage stands clean and free of animal excrement;
7. Not permit the seating capacity rated for his or her carriage to be exceeded;
8. Operate the horse drawn carriage in approved areas;
9. Not operate a carriage while under the influence of alcohol or drugs;
10. Comply with all traffic laws and regulations of the metropolitan government and state. Non-compliance shall be determined by the issuance of a citation from the Metropolitan Police Department or any law enforcement body of the state.
11. Not permit a passenger to stand or ride on any part of the carriage other than the designated seating area while the carriage is in motion and advise the passengers that they must be seated except when loading or unloading;
12. Load and unload passengers solely at designated carriage stands;
13. Not permit the speed at which any horse drawn carriage is driven to exceed a trot; and,
14. Be responsible for the proper and humane care and treatment of each animal under their direct care and control.

B. To protect the health and safety of the animal and the public, upon a finding that an animal is sick, injured, lame, malnourished, or in any other condition that renders it unfit for drawing a carriage, a commission

inspector, animal control officer or police officer may issue an order that a horse is deemed unfit for work and order it removed from the vehicle and the city streets.

C. Reserved. (Ord. BL2019-1657 § 23, 2019; Ord. BL2013-551 § 1, 2013; Ord. BL2010-793 § 15, 2010; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.210 Alcohol in horse-drawn carriage.

A. A certificate holder or driver commits an offense if he or she provides an alcoholic beverage to a passenger for a fee or as part of the passenger transport service.

B. A certificate holder or carriage driver commits an offense if he or she provides or stocks any alcoholic beverage in the horse-drawn carriage.

C. Reserved. (Amdt. 1 to Ord. BL2021-911 § 5, 2021; Ord. BL2021-911 § 5, 2021; Amdt. 1 to Ord. BL2017-645 § 1, 2017; Ord. BL2017-645 § 1, 2017; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.220 Return of passengers' property

A driver of a horse-drawn carriage shall immediately attempt to return to a passenger any property left by the passenger in the carriage. If unable to locate the passenger, the driver shall notify the certificate holder of the service, who shall notify the commission director within twenty-four hours of a description of the property and the location where the property is being stored. For property found on weekends and public holidays, the certificate holder shall notify the commission director during the next regular business day. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.230 Rates of fare.

A. Each carriage company shall be required to file with the commission a list of their basic rates thirty days prior to any change. The rate charged by each carriage shall be the same as that on file with the commission and shall be posted conspicuously within the carriage.

B. The use of any type of meter or measuring device to calculate rates of fare for a horse-drawn carriage is prohibited.

C. Passengers shall be informed of the rate prior to embarking. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

Article III. Horses, Carriages and Equipment

12.54.240 Requirements for horses in service.

A. Before any horse may be used in a horse-drawn carriage business, the permittee must furnish the MTLC staff with:

1. A state certificate of veterinarian inspection identifying the horse by description and with front, rear, right and left photographs and showing that the horse has been examined at least once within the preceding six months by a veterinarian licensed by the state;

2. Proof that the animal has had tetanus, rabies, Influenza, Rhinopneumonitis, West Nile Virus, Potomac Horse Fever and Eastern-Western encephalitis vaccinations;

3. A negative Coggins test result; and

4. Close-up photographs or drawings showing identifying markings of the horse.

5. Any documents the commission director deems necessary.

B. A permittee with an animal used in a horse drawn carriage must adhere to the following regulations and conditions:

1. Be appropriately shod and trimmed, and shall utilize rubber-coated pads or boots or open steel barium tip shoes, or other shoes approved by a veterinarian or by commission rule. If a horse loses a shoe while working, an "easy" type boot may be used to finish the scheduled workday;

2. Be inspected and maintained by a farrier at least every eight weeks, or as necessary. Records must be kept by the owner in the carriage of the dates and the name of the farrier who shod the animal. Such records are subject to inspection by the commission director and MTLC staff;

3. Not have any open or bleeding wound, oozing sore, or cut below skin level;

4. Not have evidence of lameness;

5. Have all harnesses properly fitted and in good repair with no deficiencies that create a safety hazard;

6. Be properly cleaned with no offensive odors or caked dirt or mud;

7. Wear a special sanitary device properly fitted for containing animal excrement;

8. Flies and other insects must be controlled through general sanitation and other necessary means;

9. Animals shall not pull more than three times their current weight in load, where the load weight totals all equipment, carriage driver, passengers and other carriage contents;

10. Animals weighing at least one thousand, four hundred pounds can pull six passengers. For this section, a passenger is defined as an adult weighing more than one hundred pounds;

11. Not have obvious signs of emaciation, malnutrition, or exhaustion and meets standards established through the Tennessee livestock welfare laws;

12. All harnesses, bridles and bits and any other equipment shall be properly fitted and kept in good repair. Blankets, bridles and bits shall not be used on another animal unless it is first disinfected. Harnesses and bridles shall be kept well-oiled and cleaned and in good repair;

13. Carriages must be kept properly lubricated, and wheels must spin freely and straight;

14. Animals requiring veterinary care shall not be moved, ridden or driven, except for the purpose of humane keeping, pasturing or obtaining medical care;

15. "Free choice" access to water, salt and hay or other forage suitable for equine consumption shall be available to all horses in the stabling and/or assembly/transfer sites or during rest periods;

16. Carriages shall not be pulled by stallions or pregnant mares, nor shall stallions or pregnant mares be brought into any of the stables, assembly/transfer sites or assembly/holding sites;

17. Other equids including mules and donkeys used to pull carriages must meet the same requirements as described for horses;

18. Provisions shall be made to catch or immediately pick up any manure deposited by the carriage horses away from the stable or assembly/transfer sites. The manure shall be returned to the stable or transfer sites for appropriate disposal;

19. Animals shall wear properly attached and fitted blinders while pulling carriages;

20. Owner and handlers shall take immediate measures to prevent or address shivering, overheating and any other emergency medical condition affecting the animal's health;

21. It is the responsibility of owners, drivers, and riders to protect the animal and, when under their control, to ensure that the animal is not left to roam freely and possibly cause harm to the public or itself;

22. Owners shall not allow the animal to be worked on a public highway, path or street during adverse weather or other conditions that are a threat to the health or safety of the horse and public; and,

23. No horses shall be permitted to pull a carriage with a loose shoe.

C. The commission director, commission inspector, police officer or animal control officer may require the certificate holder or driver of a horse-drawn carriage to remove from service any horse that appears to be ill, overtired, undernourished, overloaded, injured, or lame or whose health or life in the opinion of a veterinarian or qualified equine animal control officer, is in imminent danger. To reinstate a horse removed from service, the horse must be re-examined and a new state certificate of veterinarian inspection issued for the horse by a veterinarian licensed by the state and specializing in equine medicine, which certificate must be submitted to the commission director.

D. A person commits an offense by harassing or startling, or attempting to harass or startle, any horse while the horse is pulling a carriage or at rest or otherwise treats a horse inhumanely while it is working in a horse-drawn carriage. Violation of this section shall constitute a misdemeanor.

E. A certificate holder and driver shall use a trailer to transport a horse to a job location in the metropolitan government area that is more than three miles from the location where the horse is stabled.

F. For purposes of this section, a horse is considered to be working any time it is being used for-hire on a public street or sidewalk, or other public right-of-way, during any hour of operation of the horse-drawn carriage service that is authorized by and on file with the commission director.

G. The metro animal control may order quarantine on the entire premises where the animals are being stabled or any part thereof or on any particular animal for any of the following reasons:

1. Excessive parasitism, diagnosed by a veterinarian, which would cause the animal to be unfit to be ridden or driven;

2. General malnutrition, as diagnosed by a veterinarian; or

3. Presence of suspicion of contagious or transmittable disease, as diagnosed by a veterinarian.

H. Owners and operators of horse-drawn carriages shall not permit unsanitary conditions to be present on any city route, animal rest area or any area where the animals are kept. All such areas shall be kept clean and free of conditions that might harbor, or be conducive to the breeding of insects or rodents.

I. No animal shall be made to perform by means of any prod, stick, electrical shock, physical force, or by causing pain or discomfort. Any whip or riding crop must be used so as not to cause injury to the animal whether in or out of service. A whip or riding crop may be displayed on the carriage provided it is not used on any horse.

J. The certificate holder shall notify the commission director of any carriage horse that dies within twenty-four hours, or if on the weekend or a legal holiday, during the next business day. The commission director may request that a board certified veterinary pathologist shall perform a necropsy at the expense of the certificate holder. A record of the death and/or necropsy finding shall be filed with the commission director.

K. When weather conditions are adverse or inclement which could harm either horses or passengers, carriages shall not be operated. The commission, by rule, may adopt specific guidelines for the operation of carriages in inclement weather conditions. (Ord. BL2019-1657 §§ 24—27, 2019; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.250 Examination of horses.

A. The commission director may, at any time, request the metro animal control agency or its designee, to examine any carriage horse. The cost of examination of a horse shall be the responsibility of the certificate holder.

B. Each horse shall be thoroughly examined within thirty days prior to use and shall have:

1. A certificate of well-being issued by a veterinarian and kept, at all times, with the horse and available for inspection by the commission director, commission inspector, police officer or animal control officer. A copy of such certificate shall be on file with the commission director;

2. A certificate of well-being identifying the horse by breed, color, sex, and markings and showing the state and type of carriage the horse can be expected to draw safely, without causing injury to the horse.

The certificate of well-being shall be valid for a period not to exceed six months.

C. No stallions, unmanageable or unruly horses or pregnant mares shall be licensed or used at any time.

D. A license that has been issued for a mare that becomes pregnant during the license period shall be returned to the commission director by the business until such time as the mare has foaled and is recertified by a veterinarian.

E. After the initial issuance of the certificate of well-being is issued:

1. The horse must be examined at least once every six months by a veterinarian licensed by the state who specializes in equine medicine and receive a state certificate of veterinarian inspection, which must be submitted to the commission director;

2. The permittee shall keep written medical records for each horse and the records must be available for inspection at reasonable times upon request by the commission director.

F. The examination shall encompass that which is consistent with maintaining the health and well-being of the animal as determined by the usual and customary recommended treatment of animals working under such conditions by the veterinarian association. Such examinations should include, but not be limited to, leg and hoof exams, dental exams, eyes, internal parasites, lab reports, and cardiovascular health. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.260 Carriage and equipment.

A. An owner, operator, or custodian of a horse engaged in the horse-drawn carriage shall ensure and certify that the equipment used in the operation of the horse-drawn carriage meets the following standards of this section:

1. Provide that the carriage used is in good operating condition, the axles are well-greased, and that all operating mechanisms are in good working order;

2. Provide that the carriage is equipped with hydraulic brakes in good working condition;

3. Provide that the saddle, harness, shoes, bridle, and any other equipment for the horse fits properly, is in good working condition, and shall not cause injury or pain to the horse;

4. Not use twisted wire, spurs, bucking straps, flank straps, or similar devices. All bits and other equipment must be humane which are not injurious to the horse;

5. Daily inspect all horses and all equipment at the time of departure from and return to the stable; and

6. Provide that all horses are equipped with a diaper that is constructed of a sturdy material and is properly fitted to the horse to ensure comfort.

B. No carriage engaged in the horse-drawn carriage business shall be driven or operated on a public street or byway of the city unless the owner or operator of the carriage has obtained a valid identification card issued by the commission director pursuant to a procedure and fees established by this chapter.

C. A carriage used in the horse-drawn carriage service shall:

1. Have a valid permit conspicuously displayed on the carriage at all times;

2. Be equipped with a slow-moving vehicle emblem attached to the rear of the carriage;

3. Be maintained in a safe and sanitary condition;

4. Not drive or transport more than nine passengers at one time with a maximum of seven adults, excluding the driver or operator of the carriage for each horse; or ten passengers at one time, including the driver or operator for each mule;

5. Display the name and telephone number of the horse-drawn carriage with letters not to exceed three inches nor less that one inch in height on the carriage exterior. These signs must be displayed at all times that the carriage is operating for business unless the carriage is being used for a special event, such as a wedding or funeral;

6. Must be equipped with a chemical to be poured over horse urine by drivers so as to break down and eliminate accumulated agents and odors;

7. Sufficient reflective material must be placed along the shafts of the carriage, or other parts thereof, which normally parallel the body, head or legs of the horse pulling such carriage;

8. An optional rear view mirror on each side of the carriage, if requested by the commission director;

9. Be equipped with lights which comply with applicable state law;

10. A fully charged backup battery must be readily available and a carriage cannot operate without proper lights;

11. Two suitable cardholders shall be conspicuously affixed to the carriage visible to passengers. One cardholder shall hold the identification card of the carriage driver and one shall hold the identification card of the horse that is in use at the time, as well as the certificate of well being for such horse;

12. A first aid kit;

13. Consecutive daily records in a bound volume, in ink, must be kept of the movements of each horse-drawn carriage and horse by the licensee, as follows:

a. Permit number,

b. Time of departure from and arrival at stable,

c. Driver's name and permit number,

d. Driver's permit expiration date, and

e. The horse's name and identification number.

This information must be available for inspection. Only the daily logs must be available on each carriage;

14. In addition, the following information is required for each specific trip:

a. Carriage identification number,

b. Number of passengers,

c. Time of departure of trip, and

d. Time of return of trip.

D. If, upon any inspection, a carriage is found to be unsafe, unclean or unsightly, the commission director, MTLC staff, metro animal control staff or police officer, may direct that the carriage be taken out of service until such condition is corrected. Such carriage shall be re-inspected and approved by the commission director, MTLC staff or designee before returning to service, at which time a new permit shall be issued and a service fee (established by rule) shall be collected.

E. The commission may, by rule, establish additional inspection requirements for a carriage and other equipment used in the horse-drawn carriage service. (Ord. BL2019-1657 § 28, 2019; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.270 Animal working conditions.

A. No animal shall be worked under any of the following conditions, and any owner allowed to let the conditions exist will be found in violation of this article:

1. The animal is pulling more people than permitted under Section 12.54.260 of this chapter;

2. The animal works more than eight hours in any twenty-four-hour period without ten minutes of rest for each fifty minutes of work and with a minimum of twelve consecutive hours of rest;

3. The animal pulling a carriage is moved at a speed faster than a trot;

4. The animal is worked with equipment causing an impairment of vision other than normal blinders;

5. The animal is subject to any condition or treatment that will impair the good health and physical condition of the animal;

6. Water must be available before and after each shift. In addition, water shall be offered when appropriate and will not be injurious to the horse;

7. Make sure horses are given proper amounts of water before and after working, and have additional water available if needed;

8. Not work longer than eight hours within a twenty-four-hour period with a minimum of twelve consecutive hours of rest;

9. Horses shall not be worked for commercial purposes in extreme temperatures or in adverse weather. When the weather is determined to be adverse, all horses must immediately cease working, be offered shade or shelter when available, be rested and cooled off, and then walked to their stable. All horses so ordered to return to their stable must be unbridled and remain at the stable for at least one hour and until the temperature returns to the appropriate levels;

10. Be provided with daily food and water, free from contamination. Such food shall be wholesome, palatable, and of sufficient quantity and nutritive value to meet the normal daily requirements for the condition and size of the animal;

11. Shall not be overridden or driven to overheating or exhaustion. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

Article IV. General Regulations

12.54.280 Fees.

A. The annual fees for a horse-drawn carriage license issued by the commission shall be set by the commission by rule as necessary to cover all expenses related to the administration of this chapter.

B. All fees shall be made payable to metro through the commission. All certificates shall expire annually on March 1 of each year and must be renewed by the commission director to remain in force. No prorating of the fee shall be permitted.

C. If a certificate is amended to increase the number or vehicles or horses used, the commission director shall collect a fee as a result of the amendment in addition to appropriate permit fees.

D. A fee for a temporary amendment to the certificate authorizing supplemental vehicles during peak demand periods is authorized for each vehicle or horse.

E. If a license or an identification card is lost or destroyed, the commission director shall issue the permittee a duplicate permit upon payment to metro of a duplicate permit fee.

F. No refund of a fee required by this section may be made. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.290 Non-transferability.

A certificate of public convenience and necessity, horse-drawn carriage permit, carriage driver's license, or an identification card is assigned to one person or company, and is not transferable. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.300 Accidents.

A. The driver of a horse carriage shall report any accident involving such carriage to the police department. The company shall notify the commission director of such accident by nine a.m. on the next business day.

B. No horse or carriage involved in an accident where structural damage to the carriage or injury to the horse has occurred, shall be operated again until the carriage has been inspected by the commission director or a police officer and the horse has been certified for service by a veterinarian. The company shall present written notice of certification to the commission director. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.310 Approved routes and zones.

A. A certificate holder shall operate horse-drawn carriages only upon streets within zones or upon routes developed through consultation with the metropolitan traffic and parking commission staff.

B. Horse-drawn carriages operating for-hire are barred from using streets which:

1. Have a speed limit exceeding thirty-five m.p.h., unless prior approval is obtained from the traffic and parking commission staff;

2. Are designated as major arterial streets by the metropolitan planning commission, except during the hours of six p.m. to six a.m. and on Saturday, Sunday and holidays, as determined in consultation with the traffic and parking commission staff. Exceptions may be made only with the express consent of the traffic and parking commission staff.

C. The authorized zones, routes, and tether locations shall be subject to amendment as needed through consultation with the metro traffic and parking commission staff to ensure safe and efficient movement of traffic.

D. Upon approval of the traffic and parking commission staff, advance charter tours may deviate from the route or zone, provided the company operates on streets approved for routes or zones.

E. A company shall receive prior approval of the traffic and parking commission director to deviate from approved routes, zones, or destinations, which require the use or crossing of streets designated as arterial streets by the metropolitan planning commission.

F. In the event of a funeral, a company may notify the traffic and parking commission director twenty-four hours in advance of its intention to use a non-authorized route or zone. (Ord. BL2013-551 § 2, 2013; Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.320 Hours of operation.

A. Carriage shall operate only after six p.m. and must leave the streets by six a.m., Monday through Friday, unless the metropolitan traffic and parking commission grants the carriage specific permission to operate during other hours. Carriages may operate during any hours on weekends and on holidays.

B. Should the commission director determine that special circumstances exist which would jeopardize the safety of the animal, such as bad weather or other environmental problems, the commission director may order a temporary suspension of the operation of all horse-drawn vehicles until such time as the special circumstances abate.

C. Carriages lights must be lit from dusk until dawn or when inclement weather dictates. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.330 Enforcement by police department.

Officers of the police department shall assist in the enforcement of this chapter. A police officer observing a violation of this chapter, or the regulations established by the director, shall take necessary action to insure effective regulation of horse-drawn carriage. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.340 Penalties.

A. All provisions of this chapter shall be governed by the penalties found in Metropolitan Code of Laws, Section 1.01.030

B. Notwithstanding any provision contained herein, the commission shall have the authority to enforce the provisions of this chapter. (Amdt. 1 and 2 with Ord. 2002-1075 § 1 (part), 2002)

12.54.350 Complaint procedure.

On forms provided by the commission director, any complainant who alleges that a certificate holder, driver's permit holder, or employee of the certificate holder has violated provisions of this chapter shall provide a statement under penalty of perjury detailing the alleged violation. The violation date must have occurred no more than thirty days prior to the filing of the complaint form to be actionable. Upon receipt of a valid complaint, the commission director may:

1. Conduct a hearing at a location to be determined by the commission director and adjudicate the complaint by determining if a violation of this chapter has occurred.

a. Upon finding that a violation has occurred, the commission director may impose appropriate punishment, if any, for the violation pursuant to the authority found in Sections 12.54.070 and 12.54.145.

b. Prior to the hearing, the certificate holder or driver's permit holder or employee of the certificate holder that is the subject of the complaint shall be notified in writing of the nature of the complaint and the date, location and time of the hearing.

c. Should the certificate or permit be suspended, revoked, or otherwise restricted, appeals can be made to the commission by filing a written request within thirty days of the action being appealed. An appeal processing fee of twenty dollars must be enclosed with the written request.

d. During the appeal of the commission director's decision to suspend, revoke, or otherwise restrict a certificate or permit issued pursuant to this chapter before the commission, the commission may consider the commission director's adjudication when hearing the appeal. The commission shall sustain, modify or reverse the findings of the commission director. The findings of the commission shall be final, subject to any applicable legal process.

2. In his/her discretion, have the commission adjudicate the complaint by placing the complaint on the agenda for the next available commission meeting.

3. It shall be a violation of this chapter to make a false statement under oath during a disciplinary hearing before the transportation licensing commission. If the commission finds that any certificate holder or driver permittee has violated this section, the commission may place the certificate holder or driver permittee on probation, suspend, fine or revoke a certificate. (Ord. BL2019-1657 § 29, 2019)

Chapter 12.56

PARADES

Sections:

12.56.010	**Title for citation.**
12.56.020	**Definitions.**
12.56.030	**Permit—Required when—Application.**
12.56.040	**Exceptions from chapter applicability.**
12.56.050	**Permit—Application filing procedures—Police chief authority.**
12.56.060	**Permit—Issuance conditions.**
12.56.070	**Financial responsibility restrictions—Insurance required when—Recreational parades.**
12.56.080	**Permit—Notice of rejection.**
12.56.090	**Method for computing of time.**
12.56.100	**Permittee's duty to comply with directions and conditions.**
12.56.110	**Permit—Revocation conditions.**
12.56.120	**Interfering with or obstructing parades.**
12.56.130	**Driving through parades.**
12.56.140	**Parking on parade route.**
12.56.150	**Injunctive relief.**
12.56.160	**Unlawful activities designated—Penalty.**
12.56.170	**Assistance of mayor's office of film and special events; fees.**

12.56.010 Title for citation.

The ordinance codified in this chapter shall be known and may be cited as the "Parade Ordinance of the Metropolitan Government." (Ord. 89-796 § 1, 1989)

12.56.020 Definitions.

As used in this chapter, the following terms shall mean:

"Chief of police" means the chief of police of the Metropolitan Government of Nashville and Davidson County, or his/her designee.

"Metro" means the Metropolitan Government of Nashville and Davidson County.

"Parade" means any march or procession of any kind, in or upon any street, sidewalk, alley or other public place, held for the purpose of expressing First Amendment freedoms in the Metropolitan Government of Nashville and Davidson County, Tennessee.

"Parade permit" means a permit as required by this chapter.

"Person" means any person, firm, partnership, association, corporation, company or organization of any kind.

"Recreational purpose" means any march or procession of any kind, in or upon any street, sidewalk, alley or other public place in the Metropolitan Government of Nashville and Davidson County, Tennessee, including but not limited to footraces, walk-a-thons and fundraising events, wherein the purpose of such march or procession is unrelated to the expression of First Amendment freedoms. (Ord. 89-796 § 2, 1989)

12.56.030 Permit—Required when—Application.

No person shall parade, unless a parade permit has been obtained from the chief of police, or his/her designee, upon application filed with the chief of police not less than six days before the date on which it is proposed to conduct the parade. Any request for a permit to parade in or upon a park shall be approved by the director of parks and recreation, in accordance with Section 13.24.150. ((Part) of Amdt. 1 to Ord. 89-796, 6/6/89; Ord. 89-796 § 3 (part), 1989)

12.56.040 Exceptions from chapter applicability.

This chapter shall not apply to:

A. Funeral processions;

B. Picketing, marches or processions of any kind which will be conducted entirely upon the sidewalk. If more than twenty people will be involved, the organizer shall write the chief of police four days prior to the planned date of the picketing, march or procession, setting out the date and time, route, number of participants expected, and purpose;

C. Any parade or similar activity to be conducted on property subject to the jurisdiction of the board of parks and recreation. ((Part) of Amdt. 1 to Ord. 89-796, 6/6/89; Ord. 89-796 § 3 (part), 1989)

12.56.050 Permit—Application filing procedures—Police chief authority.

A. The chief of police is authorized to establish a procedure for filing an application for a parade permit, the specified times, if any, when a parade may be held in the interest of public safety, and any other provisions necessary to the implementation of this chapter.

B. The chief of police shall have the authority to reasonably modify the route, time and place of a parade to facilitate crowd control in the interest of relieving congestion and promoting public safety, provided that

the applicant's right to free speech is not denied. (Ord. 89-796 § 5, 1989)

12.56.060 Permit—Issuance conditions.

The chief of police shall issue a permit, except where the time, place and manner are not in conformity with the rules set out below, or except where the permit would conflict as to time or place with a permit previously issued:

A. The time, route and size of the parade shall not substantially disrupt the safe use and orderly movement of other traffic contiguous to its route. The applicant shall submit a copy of the parade application to the public events committee;

B. The conduct of the parade shall not require the diversion of so great a number of police officers to properly police the line of movement and the areas contiguous thereto as to prevent normal police protection to Metro;

C. When held for a recreational purpose, the parade shall be supervised by security personnel, the employment of which shall be at the sole expense of the applicant. The chief of police, or his/her designee, shall reasonably determine the number of security personnel needed for the safe conduct of the parade, and shall inform the applicant four days before the event so that the applicant can provide appropriate evidence that proper security personnel have been retained prior to the issuance of the permit;

D. The applicant has provided for the services of the number of parade monitors as set forth in established department regulations, to insure that the parade will be conducted in conformity with the parade permit;

E. The parade shall not interrupt normal ambulance service to portions of Metro other than that to be occupied by the proposed line of march and areas contiguous thereto;

F. The concentration of persons, animals and vehicles at assembly points of the parade shall not unduly interfere with proper fire and police protection of, or ambulance service to, areas contiguous to such assembly areas;

G. The conduct of such parade will not interfere with the movement of firefighting equipment en route to a fire;

H. The parade is not to be held for the sole purpose of advertising any product, goods or event, and is not designed to be held purely for private profit; however, nothing contained herein will prohibit the advertising of any product, goods or event identifying organizations or sponsors furnishing or sponsoring floats or transportation for the parade;

I. The applicant has satisfied all of the financial requirements of Sections 12.56.120 through 12.56.140, if applicable. (Ord. 89-796 § 4, 1989)

12.56.070 Financial responsibility restrictions—Insurance required when—Recreational parades.

A. The applicant for a parade permit for a recreational purpose, and any other persons, organizations, firms or corporations on whose behalf the application is made, by filing the application, do represent, stipulate, contract and agree that they will jointly and severally indemnify and hold Metro harmless against liability for any and all claims for damage to property, injury to or the death of persons arising out of or resulting from the issuance of the permit, or the conduct of the parade or its participants.

B. In addition to the requirements of subsection A of this section, in the event a parade is held for a recreational purpose, and is comprised of pedestrians and vehicles or animals, no permit shall be issued unless the applicant shall obtain a comprehensive general liability insurance policy. If motor vehicles are involved, an automobile liability policy, issued by an insurance company authorized to do business in the state with a Best Key Rating of A/VII or better, with coverage that includes the assembly area, the parade route, the disbanding area of the parade, and any other area used by the participants of the parade. Metro shall be named as an additional insured on the policy. Up to one million dollars of single-limit general liability and automobile liability insurance covering both bodily injury and property damage may be required for issuance of a parade permit. The provisions of this subsection shall not apply to parades held for a recreational purpose composed entirely of pedestrians.

C. At the time of the application for a parade permit for a recreational use, satisfactory proof that the insurance required by subsection B has been obtained shall be presented to the chief of police. The requirement for satisfactory proof may be complied with either by depositing the insurance policy itself with the chief of police, or by furnishing a certificate of insurance meeting the following specifications to the chief of police:

1. The insurance policies issued shall be listed, and for each policy the type of insurance, policy number, expiration date and limits of liability shall be shown;

2. The certificate shall designate Metro as certificate holder and as an additional insured, and shall contain a statement to the effect that the policies listed are in force, and that in the event of cancellation or any

material change in a policy affecting the certificate holder at least ten days' prior written notice shall be given to the certificate holder;

3. Below the schedule of insurance in force, the certificate shall include a statement substantially as follows:

> The comprehensive general liability policy listed above includes coverage of designated premises and coverage for contractual liability in compliance with the provisions of Section _____ of the Metro Code of Laws, for a parade to be held on _____, 19____.

4. The certificate of insurance shall be signed by an authorized agent of the issuing company or companies. (Ord. 89-796 § 9, 1989)

12.56.080 Permit—Notice of rejection.

The chief of police shall act upon the application for a parade permit within three days after the filing thereof. If the chief of police or his/her designee disapproves the application, he shall provide written notice of his action, stating the reasons for his denial of the permit. The chief of police shall make the written statement available to the applicant within three days from the date the application was filed. It shall be the responsibility of the applicant to obtain from the chief of police or his/her designee, the written statement denying the application. The chief of police shall inform the applicant of the duty to obtain the written denial at the time the application is submitted. (Ord. 89-796 § 6, 1989)

12.56.090 Method for computing of time.

In computing any period of time set out in this chapter, the date of the action after which the designated period of time begins to run is not be to be included. The last day of the period so computed is to be included. All Saturdays, Sundays and holidays are not to be counted in the time period. (Ord. 89-796 § 7, 1989)

12.56.100 Permittee's duty to comply with directions and conditions.

A permittee under this chapter shall comply with all permit directions and conditions, and with all applicable laws and ordinances. The parade chairman or other person heading or leading such activity shall carry the parade permit upon his person during the conduct of the parade. (Ord. 89-796 § 8, 1989)

12.56.110 Permit—Revocation conditions.

The chief of police or his/her designee shall have the authority to revoke at any time prior to the parade a permit issued under this chapter upon determination that the applicant materially misrepresented facts or information in the application and/or failed to meet the standards for issuance as herein set forth. (Ord. 89-796 § 11, 1989)

12.56.120 Interfering with or obstructing parades.

No person shall unreasonably hamper, obstruct or impede, or interfere with any parade or parade assembly, or with any person, vehicle or animal participating or used in a parade. (Ord. 89-796 § 10 (1), 1989)

12.56.130 Driving through parades.

No driver of any vehicle shall drive between the vehicles or persons comprising a parade when such vehicles or persons are in motion and are conspicuously designated as a parade. (Ord. 89-796 § 10 (2), 1989)

12.56.140 Parking on parade route.

The chief of police or his/her designee shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along a highway or part thereof constituting a part of the route of a parade. The director of the traffic and parking commission and/or the director of public works, upon request of the chief of police, shall post signs to such effect, and it is unlawful for any person to park or leave unattended any vehicle in violation thereof. No person shall be liable for parking on a street that has not been timely posted to prevent parked vehicles from interfering with the parade. (Ord. 89-796 § 10 (3), 1989)

12.56.150 Injunctive relief.

Nothing in this chapter providing for the regulation or license of parades, or penalties set forth for violation of this chapter, shall waive the right or otherwise preclude Metro, or any of its residents, from seeking or obtaining injunctive relief in a court of general jurisdiction for the purpose of prohibiting or regulating any proposed parade, or a parade for which a permit has been issued. (Ord. 89-796 § 13, 1989)

12.56.160 Unlawful activities designated—Penalty.

A. It is unlawful for any person to stage, present or conduct, or attempt to stage, present or conduct a parade without first having obtained a permit therefor as provided in this chapter, or who shall otherwise violate any of the provisions of this chapter.

B. It is unlawful for any person to participate in a parade on Metro streets for which a permit has not been granted.

C. It is unlawful for any person to fail to comply with all directions and conditions of the parade permit.

D. Any person violating the provisions of any section of this chapter shall, upon conviction, be fined not more than fifty dollars for each violation. (Ord. 89-796 § 12, 1989)

12.56.170 Assistance of mayor's office of film and special events; fees.

The mayor's office of film and special events shall assist the chief of police in facilitating the processing of applications for and in the issuance of the parade permits provided for in this chapter. In connection therewith, with regard to parades being held for a recreational purpose, an administrative fee of one hundred dollars shall be paid by the applicant for the cost of facilitating the application for an event being held within the right-of-way permit high impact area (as defined in Metropolitan Code Section 13.20.030.D.1.), in the form of checks or money orders payable to the mayor's office of film and special events. For events being held outside of the right-of-way permit high impact area, the administrative fee for the cost of facilitating the application shall be fifty dollars, in the form of checks or money orders payable to the mayor's office of film and special events. (Res. RS2016-391 § 4, 2016; Amdt. 1 to Ord. BL2016-235 § 7, 2016; Ord. BL2016-235 § 7, 2016)

Chapter 12.58

SCOOTERS, ROLLER SKATES AND IN-LINE SKATES

Sections:

12.58.005	**Applicability.**
12.58.010	**Streets or designated path—Uses permitted.**
12.58.020	**Sidewalks—Uses permitted—Manner of operation.**
12.58.030	**Skating single file.**
12.58.040	**Reckless or destructive operation.**
12.58.050	**Speed restrictions.**
12.58.060	**Required equipment.**
12.58.070	**Yield to right-of-way required when.**
12.58.080	**Clinging to vehicles.**
12.58.090	**Parent and guardian responsibility concerning violation.**

12.58.005 Applicability.

This section is intended to apply to scooters, roller skates and in-line skates that are not governed by Chapter 12.62, Shared Urban Mobility Devices. (Ord. BL2018-1203 § 4, 2018)

12.58.010 Streets or designated path—Uses permitted.

A person may not operate scooters, in-line skates or roller skates on public roadways, except as otherwise provided herein or as otherwise permitted, and subject to the following provisions and all other applicable provisions in this chapter:

Whenever a designated bicycle path has been provided adjacent to a roadway or as a part of a roadway, operators of scooters, in-line skates or roller skates shall use such path or designated area and shall not use the roadway. (Ord. BL2001-696 § 1 (part), 2001; Ord. 98-1352 § 6 (part), 1998)

12.58.020 Sidewalks—Uses permitted—Manner of operation.

A. Except where erected signs prohibit or other provisions of the code prohibit such activity, non-motorized scooters, in-line skates, or roller skates may be operated on sidewalks, except within a Central Business Improvement District.

B. Motorized scooters may be operated upon sidewalks, except upon sidewalks within a business district. Whenever operating a motorized scooter upon a sidewalk, the operator shall yield to any pedestrian and shall give a signal audible to such pedestrian before overtaking or passing him or her. (Ord. BL2018-1203 § 5, 2018; Ord. BL2001-696 § 1 (part), 2001; Ord. 98-1352 § 6 (part), 1998)

12.58.030 Skating single file.

Persons operating scooters, in-line skates or roller skates shall operate such scooters and skates in a single file. (Ord. BL2001-696 § 1 (part), 2001; Ord. 98-1352 § 6 (part), 1998)

12.58.040 Reckless or destructive operation.

A. No person shall operate scooters, in-line skates or roller skates upon a roadway area, sidewalk or other public property with disregard for the safety of persons or the destruction of property.

B. No person shall operate scooters, roller skates or in-line skates in a manner that is reasonably likely to damage or deface any public or private property, whether real or personal. (Ord. BL2001-696 § 1 (part), 2001; Ord. 98-1352 § 6 (part), 1998)

12.58.050 Speed restrictions.

No persons shall operate scooters, in-line skates or roller skates at a speed greater than the posted speed limit or at a speed that is faster than is reasonable and prudent under the conditions then existing. (Ord. BL2001-696 § 1 (part), 2001; Ord. 98-1352 § 6 (part), 1998)

12.58.060 Required equipment.

Whenever an operator of a scooter, in-line skates, or roller skates utilizes the sidewalk or permitted public roadway areas at nighttime, the operator shall be equipped with either (1) a lamp which shall emit a white light visible from a distance of at least five hundred feet to the front, and with a red reflector of a type which shall be visible from all distances from fifty feet to three hundred feet to the rear when directly in front of lawful upper beams of head lamps on a motor vehicle; or (2) a lamp emitting a red light visible from the distance of five hundred feet to the rear together with clearly visible reflectorized clothing. (Ord. BL2018-1203 § 6, 2018; Ord. BL2001-696 § 1 (part), 2001; Ord. 98-1352 § 6 (part), 1998)

12.58.070 Yield to right-of-way required when.

The operator of a scooter, in-line skates or roller skates emerging from an alley, driveway or building shall, upon approaching a sidewalk or the sidewalk area extending across any alleyway, yield the right-of-way to

all pedestrians approaching on such roadway. (Ord. BL2001-696 § 1 (part), 2001; Ord. 98-1352 § 6 (part), 1998)

12.58.080 Clinging to vehicles.

A person operating a scooter, in-line skates or roller skates shall not attach the same or himself to any moving vehicle upon the roadway. (Ord. BL2001-696 § 1 (part), 2001; Ord. 98-1352 § 6 (part), 1998)

12.58.090 Parent and guardian responsibility concerning violation.

The parent or any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this chapter. (Ord. 98-1352 § 6 (part), 1998)

Chapter 12.60

BICYCLES

Sections:

12.60.010	**Compliance with Title 12 provisions.**
12.60.020	**Application of Title 12 provisions.**
12.60.030	**Traffic laws applicable—Exceptions.**
12.60.040	**Obedience to traffic-control devices.**
12.60.050	**Method of riding.**
12.60.060	**Riding on right side of roadway—Passing vehicles.**
12.60.070	**Operating more than two abreast.**
12.60.080	**Number of persons on a bicycle.**
12.60.100	**Riding on sidewalks.**
12.60.110	**Speed restrictions.**
12.60.120	**Lamps and other required equipment.**
12.60.130	**Yield right-of-way required when.**
12.60.135	**Bicycle lanes.**
12.60.140	**Parking of bicycles.**
12.60.150	**Carrying articles.**
12.60.160	**Clinging to vehicles.**
12.60.165	**Youth helmets.**
12.60.170	**Parent and guardian responsibility concerning violations.**

12.60.010 Compliance with Title 12 provisions.

It is unlawful for any person to do any act prohibited or fail to perform any act required by Title 12 of this code. (Prior code § 27-1-240)

12.60.020 Application of Title 12 provisions.

The provisions of Title 12 shall apply whenever a bicycle is operated upon any street or highway or upon any path set aside for the exclusive use of bicycles, subject to those exceptions stated herein. (Prior code § 27-1-242)

12.60.030 Traffic laws applicable—Exceptions.

Every person operating a bicycle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by the laws of this state declaring rules of the road applicable to vehicles, or by the traffic ordinances of the metropolitan government applicable to the driver of a vehicle, except as to special regulations in this title and except as to those provisions of law and ordinances which by their nature can have no application. (Amdt. 1 with Ord. 99-1815 § 1, 1999; prior code § 27-1-243)

12.60.040 Obedience to traffic-control devices.

A. Any person operating a bicycle shall obey the instructions of official traffic signals, signs and other control devices applicable to vehicles, unless otherwise directed by a police officer, except that where a traffic signal is activated only by motor vehicles, a bicyclist who is faced with a red traffic signal may, after waiting a reasonable time to determine the signal will not change to green, proceed after yielding the right-of-way to all traffic lawfully proceeding through the intersection.

B. Whenever authorized signs are erected indicating that no right or left turn is permitted, no person operating a bicycle shall disobey the direction of any such sign, except where such person dismounts from the bicycle to make any such turn, in which event such person shall then obey the regulations applicable to pedestrians. (Ord. 99-1815 § 2, 1999; prior code § 27-1-244)

12.60.050 Method of riding.

A person operating a bicycle shall not ride other than astride a permanent and regular seat attached thereto. (Ord. 99-1815 § 3, 1999; prior code § 27-1-245)

12.60.060 Riding on right side of roadway—Passing vehicles.

Any person operating a bicycle upon a roadway at less than the normal speed of traffic at the time and place and under the conditions then existing shall ride in the same direction as other vehicular traffic as close as practicable to the right-hand curb or edge of the roadway except under any of the following situations:

A. When overtaking and passing another vehicle proceeding in the same direction;

B. When preparing for a left turn at an intersection or onto a private road or driveway;

C. When reasonably necessary to avoid conditions, including but not limited to fixed or moving objects, parked or moving vehicles, pedestrians, animals, surface hazards, or substandard-width lanes that make it unsafe to continue along the right-hand curb or edge. For purposes of this section, a "substandard-width lane" means a lane too narrow for a bicycle and another vehicle to travel safely within the lane;

D. When riding on a shoulder if such operation does not violate any section of this title for passing or direction of travel;

E. When proceeding straight ahead on a multiple lane roadway with a "right turn only" lane; or

F. When riding within a bicycle lane. (Ord. 99-1815 § 4, 1999; prior code § 27-1-247)

12.60.070 Operating more than two abreast.

Persons operating bicycles upon a roadway shall not ride more than two abreast. Persons operating two abreast shall not impede the normal and reasonable movement of traffic and, on a laned roadway, shall ride within a single lane. (Ord. 99-1815 § 5, 1999; prior code § 27-1-248)

12.60.080 Number of persons on a bicycle.

No bicycle shall be used to carry more persons at one time than the number for which it is designed and equipped. (Prior code § 27-1-246)

12.60.100 Riding on sidewalks.

A. No person shall operate a bicycle upon a sidewalk within a business district.

B. Whenever any person is operating a bicycle upon a sidewalk, such person shall yield the right-of-way to any pedestrian and shall give an audible signal before overtaking and passing such pedestrian.

C. Persons operating bicycles across a roadway or driveway and along a crosswalk from a sidewalk or path have all the duties applicable to pedestrians under the same circumstances. Such persons similarly have the rights of pedestrians, but only if the bicyclist was entitled to use the sidewalk or path, and the approach and entry into the roadway or driveway are made at a speed no greater than an ordinary walk so that other drivers may anticipate the necessity to yield when required. (Ord. 99-1815 § 7, 1999; prior code § 27-1-255)

12.60.110 Speed restrictions.

No person shall operate a bicycle at a speed greater than the posted speed limit or at a speed which is greater than is reasonable and prudent under the conditions then existing. (Ord. 99-1815 § 8, 1999; prior code § 27-1-250)

12.60.120 Lamps and other required equipment.

A. Every bicycle, when in use at nighttime, shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least five hundred feet to the front, and with a red reflector on the rear of a type which shall be visible from all distances from fifty feet to three hundred feet to the rear when directly in front of lawful upper beams of headlamps on a motor vehicle. A lamp emitting a red light visible from the distance of five hundred feet to the rear shall be used in addition to the red reflector.

B. Every bicycle shall be equipped with a brake or brakes which will enable its driver to stop the bicycle within twenty-five feet from a speed of ten miles per hour on dry, level, clean pavement. (Ord. 99-1815 § 9, 1999; prior code § 27-1-256)

12.60.130 Yield right-of-way required when.

The operator of a bicycle emerging from an alley, driveway or building shall, upon approaching a sidewalk or the sidewalk area extending across any alleyway, yield the right-of-way to all pedestrians approaching on such sidewalk or sidewalk area, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on such roadway. (Prior code § 27-1-252)

12.60.135 Bicycle lanes.

A. Every person operating a motor vehicle shall yield the right-of-way to a person operating a bicycle within a bicycle lane. A person operating a motor vehicle may cross a bicycle lane when making a turn or when entering or leaving the roadway, but a bicycle lane shall not be used as turning lane or passing lane.

B. Motor vehicles should not be parked, stopped or left standing in bicycle lanes unless the metropolitan traffic and parking commission has determined that parking within the bicycle lane in specific locations is appropriate during certain hours and signs have been erected in the designated area(s) to that effect.

C. A person operating a bicycle within a bicycle lane shall give an audible signal when passing another person operating a bicycle proceeding in the same direction and shall further pass on the left.

D. A person operating a bicycle entering a bicycle lane shall yield the right of way to all bicycles in the bicycle lane. A person operating a bicycle leaving a bicycle lane shall yield the right of way to all vehicles and pedestrians. No person operating a bicycle lane shall leave it until the movement can be made with reasonable safety and, if any vehicle would be affected by the movement, by giving an appropriate signal before the movement is made.

E. A person operating a bicycle within a bicycle lane shall travel in the same direction as motor vehicles traveling in the adjacent traffic lane. (Ord. BL2008-307 § 2, 2008; Ord. 99-1815 § 10, 1999)

12.60.140 Parking of bicycles.

A. A person may park a bicycle on a sidewalk unless prohibited or restricted by an official traffic control device.

B. A bicycle parked on a sidewalk shall not impede the normal and reasonable movement of pedestrian or other traffic.

C. A bicycle may be parked on a roadway at any angle to the curb or edge of the roadway at any location where parking is allowed.

D. A bicycle may be parked on a roadway abreast another bicycle near the side of the roadway at any location where parking is allowed.

E. A person shall not park a bicycle on a roadway in such a manner as to obstruct the movement of a legally parked motor vehicle.

F. Any person may park near and secure a bicycle to any publicly owned pole or post if no bicycle rack is available, for a period of not more than twelve hours, unless an official control device or any applicable law or ordinance prohibits the parking or securing of bicycles at that location. (Ord. 99-1815 § 11, 1999)

12.60.150 Carrying articles.

No person operating a bicycle shall carry any package, bundle or article which prevents the rider from keeping at least one hand upon the handlebars. (Prior code § 27-1-254)

12.60.160 Clinging to vehicles.

A. A person riding upon any bicycle shall not attach the same or himself to any moving vehicle upon a roadway.

B. The provisions of this section shall not be construed to prohibit the attachment of a bicycle trailer or bicycle semitrailer to a bicycle, if such trailer or semitrailer is designed specifically for such purpose. (Prior code § 27-1-251)

12.60.165 Youth helmets.

No person who is under sixteen years of age shall operate a bicycle, or ride as a passenger on a bicycle or a bicycle trailer, on a public roadway, bikeway, sidewalk or bike path unless wearing a protective helmet designed for public safety which meets or exceeds the standards set by the American Standards Institute (ANSI), the American Society for Testing and Materials (ASTM) or the Snell Foundation. While not mandatory, bicycle operators who are sixteen years of age or older are encouraged to wear helmets. (Ord. 99-1815 § 12, 1999)

12.60.170 Parent and guardian responsibility concerning violations.

The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this chapter. (Prior code § 27-1-241)

Chapter 12.61

PERSONAL DELIVERY DEVICES

Sections:

12.61.010	**Personal delivery devices defined.**
12.61.020	**Personal delivery devices prohibited.**

12.61.010 Personal delivery devices defined.

For purposes of this chapter, the term "personal delivery device" means a device that:

A. Is solely powered by an electric motor;

B. Is operated primarily on sidewalks and crosswalks;

C. Is intended primarily for the transport of property on public rights-of-way; and

D. Is capable of navigating with or without the active control or monitoring of a natural person. (Ord. BL2020-333 § 1, 2020)

12.61.020 Personal delivery devices prohibited.

Personal delivery devices shall be prohibited within the metropolitan government public rights-of-way. The initial expiration date of this prohibition shall be December 31, 2020; provided however that the expiration date shall be automatically extended until April 30, 2021, unless the metropolitan council shall terminate this prohibition by a resolution receiving twenty-one affirmative votes before the initial expiration date. The prohibition shall not be extended past April 30, 2021, except by the metropolitan council by resolution. (Amdt. 1 to Ord. BL2020-333 § 1, 2020; Ord. BL2020-333 § 1, 2020)

Chapter 12.62

SHARED URBAN MOBILITY DEVICES*

Sections:

12.62.010 Definitions.
12.62.020 Termination of SUMD permits.

12.62.010 Definitions.

The following words and phrases shall have the meanings set forth below, unless the context clearly requires otherwise:

"Business District", as defined in Tenn. Code Ann. § 55-8-101(9), means the territory contiguous to and including a highway when, within any six hundred feet along the highway, there are buildings in use for business or industrial purposes, including, but not limited to, hotels, banks, or office buildings, railroad stations and public buildings that occupy at least three hundred feet of frontage on one side or three hundred feet collectively on both sides of the highway.

"Lock-to Shared Urban Mobility Device (SUMD) system" means a system which provides SUMDs for short-term rentals for point-to-point trips which must be locked or secured to a stationary object. A SUMD that is not lock-to would be dockless.

"Operator" means a corporation, firm, joint venture, limited liability company, partnership, person, or other organized entity that operates a SUMD system, whether for profit or not for profit.

"Powered" means electric or motorized; in the case of a UMD, it also means any other technology that allows the UMD to be self-propelled.

"Shared Urban Mobility Device (SUMD) system" or "system" means a system which provides urban mobility devices for short-term rentals for point-to-point trips. Such a system can be a Lock-to SUMD System or a dockless SUMD system.

"Urban Mobility Device (UMD)" means bicycles, tricycles, scooters, hoverboards, skateboards, pedal cars, and other similar devices, whether they are powered or nonpowered. A UMD does not include devices used as assistive mobility devices by persons with disabilities.

"User" means a person who rents and uses a UMD from an operator. (Amdt. A to Ord. BL2018-1202 § 1, 2018; Ord. BL2018-1202 § 1, 2018)

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*__Editor's note—__Ord. BL2019-1658 § 1, adopted July 16, 2019, repealed §§ 12.62.020—12.62.120, which pertained to shared urban mobility devices and derived from Amdt. C to Ord. BL2018-1202 § 1, 2018; Amdt. B to Ord. BL2018-1202 § 1, 2018; Amdt. A to Ord. BL2018-1202 § 1, 2018; Ord. BL2018-1202 § 1, 2018; Amdt. 2 to Ord. BL2018-1441 §§ 1, 2, 4—7, 11, 12, 2019; Amdt. 1 to Ord. BL2018-1441 § 6, 2019; Ord. BL2018-1441 §§ 1—8, 11, 12, 2019.

12.62.020 Termination of SUMD permits.

A. In the interest of public safety and to protect public welfare, upon the effective date of this section, recognized SUMD permits shall consist solely of the temporary permits authorized under Substitute Ordinance No. BL2019-1658 — allowing a fleet size of fifty percent of that which was authorized by predecessor permits on July 1, 2019. All temporary permits shall terminate automatically upon the issuance of new permits by the MTLC to operate SUMDs as result of a Request for Proposal (RFP) process, as set forth below.

B. There shall be no additional SUMD permits or fleet expansions issued by the MTLC unless and until an RFP process, as set forth below, has occurred. Any future SUMD operator permit must be issued pursuant to the RFP process.

C. The MTLC is directed to conduct an RFP process as described herein. This process shall be completed, not including protests and procurement appeals if any, within one hundred twenty days from the effective date of this ordinance and new permits issued as soon as practicable thereafter. The RFP shall select operators to operate a fleet of SUMDs. The MTLC shall initially allow each selected operator a maximum of five hundred units in its fleet. Future post-RFP increases in a specific operator's SUMD fleet size shall be determined by the MTLC, based upon reasonable and objective criteria to be developed by the MTLC, including but not limited to, an operator's ability and willingness to achieve the goals of this chapter. In addition to any evaluation criteria developed by the MTLC, the RFP process will be required to thoroughly evaluate potential operators in the following areas:

1. The potential operator's commitment to regularly participate in shared micromobility operational stakeholder meetings focusing upon operational matters encompassing a wider and more diverse group than the operators, such as outreach and educational groups;

2. The potential operator's commitment to address the safety and security concerns expressed by the public regarding past, current, and future SUMD services, including specific commitments to and experiences with local governments to achieve safe, effective operations;

3. The potential operator's commitment and ability to effectively partner with the metropolitan government on an ongoing basis for purposes of addressing the continuing needs, concerns, and objectives of the metropolitan government in regulating SUMDs, including matters of equity including geographic coverage, affordability, technology, and abilities;

4. The potential operator's commitment to ensuring rider compliance with state and local laws, including, but not limited to DUI laws and minimum rider age requirements;

5. The potential operator's commitment to promoting proper and safe use of SUMDs, including use of helmets and/or other equipment and the provision of safety education;

6. The potential operator's use of staffing, technology, and other means to restrict or prohibit use of SUMDs in restricted areas, including but not limited to, sidewalks.

7. The sufficiency of the potential operator's staffing to adequately and timely address (a) improper parking of SUMDs on public rights-of-way, public sidewalks, and private property; (b) uprighting overturned SUMDs during recognized hours of operation; and (c) rebalancing or reallocating SUMDs evenly throughout the city during recognized hours of operation; (d) potential violations of the Americans with Disabilities Act (ADA) or other improper interference with access to public thoroughfares;

8. The response time required by the potential operator to address issues with SUMDs;

9. The potential operator's plans to coordinate and cooperate with the metropolitan government regarding special events;

10. The potential operator's approach to collaborating with the metropolitan government in developing shared expectations and approaches for safety-related management matters such as inclement weather, impaired drivers, equipment, public education, etc.;

11. The potential operator's willingness and ability to conform to adaptive regulations that address changing technologies, evolving markets, as well as risk impacts that vary based upon location, time of day, and other variables;

12. The potential operator's willingness and ability to perform within a regulatory "pilots" environment in which potential solutions are tested under varied circumstances in order to determine best practices and approaches;

13. The potential operator's willingness and ability to work within outcome-based regulations, including performance-based criteria, in lieu of fixed regulations;

14. The potential operator's willingness and ability to comply with risk-weighted regulations, adjusted to address measured safety risks faced by members of the public and/or SUMD riders under particular circumstances;

15. The potential operator's willingness and ability to provide pricing and availability options to riders based upon equity and lower incomes;

16. The potential operator's proposals for addressing sustainability and environmental concerns; and

17. The potential operator's ability to provide the metropolitan government with anonymized and aggregated location data sharing and open data information regarding SUMD locations, ridership, aggregated (five trip minimum) SUMD traffic patterns, and other data

D. The MTLC is directed to enact regulations it deems necessary for the safe and efficient operation of a SUMD fleet to govern (i) the interim period of reduced SUMD fleet operation in Nashville and Davidson County, as well as (ii) the period after an operator has been selected pursuant to the RFP process outlined above. In addition to such regulations, the MTLC shall be authorized to establish additional fees it determines as reasonable and necessary to carry out and enforce this ordinance. The MTLC shall be further authorized to establish and impose a limit upon the number of permitted operators, to the extent allowed by law, provided such limitation is deemed to be within the public interest. The regulations previously adopted by the MTLC on August 7, 2019, and amendments thereto, pursuant to the authority given to the MTLC in Substitute Ordinance No. BL2019-1658 to enact regulations, are acknowledged to be consistent with the above and shall remain in force until and unless the MTLC amends them. Notwithstanding the above or any conflicting provision in the Metropolitan Code, the MTLC shall not amend the regulations without providing a draft of each proposed regulation to all operators and the public two weeks prior to the MTLC's consideration of the amendment. The MTLC is directed to establish publicly available privacy principles and a summary of its implemented data security measures under those principles to ensure the protection of all data collection as a result of the RFP and through the SUMD program.

E. All temporary permits authorized pursuant to Section 12.62.020.A of this Chapter shall remain subject to indemnification agreements previously executed by or on behalf of SUMD operators indemnifying and holding harmless the Metropolitan Government of Nashville and Davidson County. Additionally, all temporary permit holders shall include in agreements with its users a term that its users must agree to as a prerequisite to the use of the SUMD: that the user fully releases and waives all liability of the metropolitan government for any injury or harm the user experiences arising from the user's use of the certificate holder's SUMD. (Amdt. 2 to Ord. BL2019-109 § 2, 2020; Amdt. 1 to Ord. BL2019-109 § 2, 2020; Ord. BL2019-109 § 2, 2020; Amdt. 1 to Ord. BL2019-1658 § 2, 2019; Ord. BL2019-1658 § 2, 2019)

Chapter 12.64

MOTORCYCLES

Sections:

12.64.010	**Applicability of traffic regulations.**
12.64.020	**Manner of riding—Restrictions.**
12.64.030	**Footrest and handlebar requirements.**
12.64.040	**Equipment required for motorcycle riders.**
12.64.050	**Operating procedures on laned roadways.**
12.64.060	**Clinging to other vehicles.**

12.64.010 Applicability of traffic regulations.

Every person operating a motorcycle shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of any other vehicle under this title, except as to special regulations in this chapter and except as to those provisions of this title which by their nature can have no application. (Prior code § 27-1-80)

12.64.020 Manner of riding—Restrictions.

A. A person operating a motorcycle shall ride only upon the permanent and regular seat attached thereto, and such operator shall not carry any other person nor shall any other person ride on a motorcycle unless such motorcycle is designed to carry more than one person, in which event a passenger may ride upon the permanent and regular seat if designed for two persons, or upon another seat firmly attached to the motorcycle at the rear or side of the operator.

B. A person shall ride upon a motorcycle only while sitting astride the seat, facing forward, with one leg on each side of the motorcycle.

C. No person shall operate a motorcycle while carrying any package, bundle or other article which prevents him from keeping both hands on the handlebars.

D. No operator shall carry any person, nor shall any person ride, in a position that will interfere with the operation or control of the motorcycle or the view of the operator.

E. Section 12.84.020 sets out the penalty for violations of subsections A through D of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (20), 1990; prior code § 27-1-81)

12.64.030 Footrest and handlebar requirements.

A. Any motorcycle carrying a passenger, other than in a sidecar or enclosed cab, shall be equipped with footrests for such passenger.

B. No person shall operate any motorcycle with handlebars more than fifteen inches in height above that portion of the seat occupied by the operator.

C. Section 12.84.010 sets out the penalty for violation of this section. (§ 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part) of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 4 (1), 1990; prior code § 27-1-84)

12.64.040 Equipment required for motorcycle riders.

A. No person shall operate or ride upon a motorcycle unless he is wearing protective headgear which complies with standards established by the Tennessee State Statute Annotated.

B. No person shall operate a motorcycle unless he is wearing an eye protective device of a type approved by the Tennessee State Statute Annotated, except when the motorcycle is equipped with a windscreen.

C. This section shall not apply to persons riding within an enclosed cab.

D. Section 12.84.010 sets out the penalty for violation of this section. (§ 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part) of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 4 (2), 1990; prior code § 27-1-85)

12.64.050 Operating procedures on laned roadways.

A. All motorcycles are entitled to full use of a lane, and no motor vehicle shall be driven in such a manner as to deprive any motorcycle of the full use of a lane. This subsection shall not apply to motorcycles operated two abreast in a single lane.

B. The operator of a motorcycle shall not overtake and pass in the same lane occupied by the vehicle being overtaken.

C. No person shall operate a motorcycle between lanes of traffic, or between adjacent lines or rows of vehicles.

D. Motorcycles shall not be operated more than two abreast in a single lane.

E. Subsections B and C of this section shall not apply to police officers in the performance of their official duties.

F. Section 12.84.020 sets out the penalty for violation of subsections A through D of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (21), 1990; prior code § 27-1-82)

12.64.060 Clinging to other vehicles.

A. No person riding upon a motorcycle shall attach himself or the motorcycle to any other vehicle on a roadway.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (22), 1990; prior code § 27-1-83)

Chapter 12.68

MISCELLANEOUS DRIVING RULES

Sections:

12.68.010 **Drivers in processions.**
12.68.020 **Funeral procession identification.**
12.68.030 **Driving through funeral processions.**
12.68.040 **Following fire apparatus.**
12.68.050 **Driving over fire hose.**
12.68.060 **Causing unnecessary traffic congestion—Regulations in shopping center parking lots.**
12.68.070 **Opening doors into traffic.**
12.68.080 **Backing of vehicles—Restrictions.**
12.68.090 **Coasters, roller skates and other toy vehicles.**
12.68.100 **Golf cart requirements.**
12.68.110 **Towing of vehicles.**
12.68.120 **Detour signs—Driver obedience required.**
12.68.130 **Driving on sidewalks.**
12.68.140 **Riding on portions of vehicle not intended for passengers.**
12.68.150 **Putting glass, nails or other injurious material on highway—Clearing accident wreckage.**
12.68.160 **Boarding or alighting from moving vehicles.**
12.68.170 **Careless driving.**
12.68.180 **Reckless driving.**
12.68.190 **Driving under the influence of intoxicating liquor or drugs.**
12.68.200 **Attempting to elude police officers.**
12.68.210 **Use of mobile telephones while operating a school bus or other vehicle transporting children.**
12.68.220 **Regulating the transportation of liquefied petroleum gas.**

12.68.010 Drivers in processions.

A. Each driver in a funeral or other procession shall drive as near to the right-hand side of the roadway as practicable and safe, and shall follow the vehicle ahead as close as is practicable and safe.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (16), 1990; prior code § 27-1-76)

12.68.020 Funeral procession identification.

A. A funeral composed of a procession of vehicles shall be identified as such by the display upon the outside of each vehicle of a pennant or other identifying insignia, or by such other method as may be determined and designated by the traffic and parking commission.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (15), 1990; prior code § 27-1-75)

12.68.030 Driving through funeral processions.

A. No driver of a vehicle shall drive between the vehicles comprising a funeral or other authorized procession while they are in motion and when such vehicles are properly designated as required in this chapter.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (17), 1990; prior code § 27-1-77)

12.68.040 Following fire apparatus.

A. The driver of any vehicle other than one on official business shall not follow any fire apparatus traveling in response to a fire alarm closer than five hundred feet, or drive into and park such vehicle within the block where fire apparatus has stopped in answer to a fire alarm.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (13), 1990; prior code § 27-1-73)

12.68.050 Driving over fire hose.

A. No vehicle shall be driven over any unprotected hose of a fire department when laid down on any street, private road or driveway to be used at any fire or alarm of fire, without the consent of the fire department official in command.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (14), 1990; prior code § 27-1-74)

12.68.060 Causing unnecessary traffic congestion—Regulations in shopping center parking lots.

A. It is unlawful for any person to cause unnecessary traffic congestion by driving aimlessly through the parking lots of shopping centers or other retail stores, or

not-for-profit religious or educational institutions within the area of metropolitan government when a sign has been posted prohibiting such activity.

B. It shall be the duty of the owner of the property on which the signs are posted to request in writing that the metropolitan police department enforce this section on their property. The owner of the property may also post speed limit signs and other traffic-control devices regulating the use of the premises, which regulations may be enforced by the metropolitan government. The responsibility and cost for erection of all such signs shall be borne by the property owner, and all signs shall be subject to the approval of the traffic and parking commission and shall conform to standard uniform traffic sign regulations customarily used by the metropolitan government. (Ord. 90-1214 § 1, 1990; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (54), 1990; prior code § 27-1-119.1)

12.68.070 Opening doors into traffic.

A. No person shall open the door of a motor vehicle on the side available to moving traffic, unless and until it is reasonably safe to do so, and can be done without interfering with the movement of other traffic, nor shall any person leave a door open on the side of a vehicle available to moving traffic for a period of time longer than necessary to load or unload passengers.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (26), 1990; prior code § 27-1-91)

12.68.080 Backing of vehicles—Restrictions.

A. The driver of a vehicle shall not back the same unless such movement can be made with safety and without interfering with other traffic, and shall not back into a street intersection, or around a street corner, and in no event shall the distance of the backing movement exceed fifty feet, and shall in every case yield the right-of-way to moving traffic and pedestrians.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (18), 1990; prior code § 27-1-78)

12.68.090 Coasters, roller skates and other toy vehicles.

A. No person upon roller skates, coasters or sleds, or riding in or by means of any coaster, toy vehicle or similar device, shall go upon any roadway, except while crossing a street on a crosswalk, and when so crossing such person shall be granted all of the rights and shall be subject to all of the duties applicable to pedestrians, except as otherwise permitted in this title.

B. Section 12.84.020 sets out the penalty for violation of this section. (Ord. 98-1352 § 2, 1998; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (51), 1990; prior code § 27-1-117)

12.68.100 Golf cart requirements.

Every golf cart, regardless of the number of wheels, shall comply with equipment requirements applicable to motorcycles under this title, except those requirements solely applicable to motor-driven cycles. (Prior code § 27-1-86)

12.68.110 Towing of vehicles.

A. It is unlawful to tow any motor vehicle upon any street or highway if the drawbar or connection exceeds eight feet from one vehicle to the other. Any vehicle being towed upon any street during a period between one-half hour after sunset and one-half hour before sunrise shall maintain lights on both sides and the rear thereof, visible to the rear and on both sides for a distance of not less than two hundred feet.

B. It is unlawful to tow any vehicle without red stop lights meeting the requirements of Tennessee State Statute Annotated.

C. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (31), 1990; prior code § 27-1-96)

12.68.120 Detour signs—Driver obedience required.

A. It is unlawful to tear down or deface any detour sign or to break down or drive around any barricade erected for the purpose of closing any section of a street to traffic during construction, repair, or for any purpose incident to the needs of public safety or convenience, or to drive over such section of the street until again thrown open to public traffic; however, such restriction shall not apply to the persons in charge of such construction or repair or project for public safety or convenience.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (29), 1990; prior code § 27-1-94)

12.68.130 Driving on sidewalks.

A. No person shall drive any vehicle upon a sidewalk or sidewalk area except upon a permanent or duly authorized temporary driveway.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (19), 1990; prior code § 27-1-79)

12.68.140 Riding on portions of vehicle not intended for passengers.

A. No person shall ride on any portion of a vehicle not designed or intended for the use of passengers. This section shall not apply to an employee engaged in the necessary discharge of a duty or to persons riding within truck bodies in space intended for merchandise.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (27), 1990; prior code § 27-1-92)

12.68.150 Putting glass, nails or other injurious materials on highway—Clearing accident wreckage.

A. No person shall throw or deposit upon any highway any glass bottle, glass, nails, tacks, wire, cans, or any other substance likely to injure any person, animal or vehicle upon such highway.

B. Any person who drops, or permits to be dropped or thrown upon any highway any destructive or injurious material shall immediately remove the same or cause it to be removed.

C. Any person removing a wrecked or damaged vehicle from a highway shall remove any glass or other injurious substance dropped upon the highway from such vehicle.

D. Section 12.84.020 sets out the penalty for violations of subsections A through C of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (53), 1990; prior code § 27-1-119)

12.68.160 Boarding or alighting from moving vehicles.

A. No person shall board or alight from any vehicle while such vehicle is in motion.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (25), 1990; prior code § 27-1-90)

12.68.170 Careless driving.

A. Every person operating a vehicle upon the streets within the metropolitan government, or upon any private road or driveway or parking area, shall drive the same in a careful and prudent manner, having regard for the width, grade, curves, corners, traffic and use of these streets and private areas, and all other attendant circumstances, so as not to endanger the life, limb or property of any person. Failure to drive in such manner shall constitute careless driving and a violation of this chapter.

B. Section 12.84.030 sets out the penalty for violation of subsection A of this section. (Ord. 98-1447 § 8, 1999; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (12), 1990; prior code § 27-1-71)

12.68.180 Reckless driving.

A. It is unlawful for any person to drive any vehicle upon the streets of the metropolitan government or upon any private road or driveway or parking area in a wilful and wanton disregard for the safety of persons or property. Any person who drives any vehicle at a speed of fifteen or more miles per hour than the posted speed limit upon any streets of metropolitan government or upon any private road or driveway or parking area in any residence district shall be presumed to be driving in a wilful and wanton disregard for the safety of persons or property and the burden of proof shall be upon the driver to establish that they were not driving with such disregard.

B. Deleted. (Amended during 10/99 supplement; Ord. 98-1497 § 1, 1999; Ord. 95-1329 § 2 (part), 1995; Ord. 94-1237 § 1, 1994; § 3 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 3 (part), 1990; prior code § 27-1-70)

12.68.190 Driving under the influence of intoxicating liquor or drugs.

See state statute. (Prior code § 27-1-72)

12.68.200 Attempting to elude police officers.

Any driver of a motor vehicle who wilfully fails or refuses to bring his vehicle to a stop, or who otherwise flees or attempts to elude a pursuing police vehicle, when given visual or audible signal to bring the vehicle to a stop, shall be guilty of a misdemeanor. The signal given by the police officer may be by hand, voice, emergency light or siren. (Prior code § 27-1-87)

12.68.210 Use of mobile telephones while operating a school bus or other vehicle transporting children.

No person shall use a mobile telephone while operating a moving school bus or other bus or van transporting children with a seating capacity of fifteen or more persons, except in the case of an emergency. For purposes of this section, an "emergency" shall mean that the operator of the bus or van needs to communicate with another to report that the vehicle is disabled, that medical attention or assistance is required for a passenger on the bus or van, that police intervention is

necessary for the personal safety of a passenger or to otherwise ensure the safety of the passengers, or to report the presence of a disabled vehicle or an accident in the roadway. The foregoing provisions of this section shall not apply to a private individual transporting his/her family. (Ord. BL2004-177 § 1, 2004)

12.68.220 Regulating the transportation of liquefied petroleum gas.

A. It is unlawful for any person to transport in the area of the metropolitan government any containers or cylinders of liquefied petroleum gas in excess of twenty pounds capacity, unless the cylinders or containers are securely fastened and equipped with appropriate valve guards or caps. Furthermore, no containers of liquefied petroleum gas shall be transported in any vehicle, whether private or for hire, while in use with heating equipment. This does not preclude carrying of containers for the use of liquefied petroleum gas as a motor fuel in conjunction with the operation of a vehicle of any type.

B. A violation of subsection A of this section shall be punished as provided in Section 12.84.030 of the Metropolitan Code of Laws. (Ord. BL2021-678 § 1, 2021)

Chapter 12.69

CRUISING ON PUBLIC STREETS

Sections:

12.69.010	**Purpose.**
12.69.020	**Definitions.**
12.69.030	**Cruising prohibited.**
12.69.040	**Notice.**
12.69.050	**Enforcement.**
12.69.060	**Exceptions.**
12.69.070	**Penalties.**
12.69.080	**Severability.**

12.69.010 Purpose.

The purpose of this chapter is to reduce traffic congestion and excessive noise and pollution; to ensure passage for emergency vehicles during hours when congestion occurs in certain areas ("no cruising zones"); and, to increase access by members of the general public to such areas, which access is currently restricted due to unnecessary traffic congestion arising from cruising. (Ord. BL 2002-1127 § 1 (part), 2002)

12.69.020 Definitions.

For the purpose of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Congested traffic" means traffic on any public street which is delayed to the point that motor vehicles back up in any direction for more than one block restricting vehicular movement on any public streets, where the delay in forward movement is due to the position of other motor vehicles; or motor vehicles cannot readily move forward on portions of the public street between intersections with other public streets because the average traffic speed has dropped to less than five miles per hour, where the delay in forward movement is due to the position of other motor vehicles.

"Designated street" means any public street or roadway designated a "no cruising area" pursuant to this chapter. Any street or roadway so designated shall be clearly marked with signs advising the public that the street or roadway is subject to such regulation.

"Cruising" means the unnecessary repetitive driving of a motor vehicle on a designated street or roadway past the same traffic control point two or more times in any three hour period during the restricted hours, upon a designated street with posted signs informing the public that the street is subject to regulation under this ordinance and that said regulation is in effect.

"Traffic control point" means a clearly identified reference point on a designated street, as determined and marked by an official traffic control device posted at the direction of the metropolitan traffic and parking commission.

"Restricted hours" means the days and times that cruising is prohibited, specifically between the hours of 9:00 p.m. until 3:00 a.m. each day of the week.

"Restricted area" means those streets or roadways designated by the traffic and parking commission as a "no cruising area" and that are within that area of the metropolitan government bounded on the north by Charlotte Avenue, on the south by Franklin Street, on the west by Eighth Avenue, and on the east by the Cumberland River. (Ord. BL 2002-1127 § 1 (part), 2002)

12.69.030 Cruising prohibited.

No person shall engage in unnecessary repetitive driving, also known as "cruising" as defined herein, while operating a motor vehicle, and no owner of a motor vehicle shall permit another to engage in cruising while operating a motor vehicle under his or her care, custody and control, after notice as described in Section 12.69.040. (Ord. BL 2002-1127 § 1 (part), 2002)

12.69.040 Notice.

Upon observation that a motor vehicle has been operated on a designated and posted street or roadway past the same traffic control point two or more times during the restricted hours, the vehicle shall be stopped after the second or subsequent observation for the purpose of giving notice to the operator and to each passenger in the vehicle. The notice, which may be verbal or in writing, shall inform the operator and passengers that this chapter is in effect, and that subsequent operation of the vehicle past any traffic control point during the restricted hours after the initial observation of the vehicle shall constitute a violation of this chapter. The notice shall include a brief and general description of the designated streets or the area containing the designated streets and a description of the penalty which may be imposed upon conviction. (Ord. BL 2002-1127 § 1 (part), 2002)

12.69.050 Enforcement.

The operation of a motor vehicle past the same traffic control point where a posted official traffic control device prohibits cruising, after issuance of the notice described herein, constitutes a violation of Section 12.69.030. A uniform traffic citation for violation of Section 12.69.030, shall be issued to the actual operator of the motor vehicle at the time the offense occurs. It shall be immaterial whether the operator at the time the offense occurs actually operated the motor vehicle each

time it passed the traffic control point. (Ord. BL 2002-1127 § 1 (part), 2002)

12.69.060 Exceptions.

This chapter shall not apply to:

A. An official public safety or emergency vehicle;

B. A licensed public transportation vehicle;

C. A vehicle being used for business purposes;

D. Any special event as declared by the mayor's office of film and special events;

E. Residents living within the designated "no cruising area". (Ord. BL 2002-1127 § 1 (part), 2002)

12.69.070 Penalties.

Any person violating the provisions of this chapter shall be subject to a fine of fifty dollars per citation issued. (Ord. BL 2002-1127 § 1 (part), 2002)

12.69.080 Severability.

Should any portion of this chapter be declared to be invalid by any court of competent jurisdiction, such provision shall be severed and shall not affect the validity of the remaining provisions. (Ord. BL 2002-1127 § 1 (part), 2002)

Chapter 12.72

TOW-IN LOTS

Sections:

12.72.010 **Establishments and use—Police department jurisdiction.**

12.72.020 **Rules and regulations for operation and collection of storage charges.**

12.72.030 **Procedures for hauling vehicles to the lot—Reimbursement of costs.**

12.72.040 **Charges for towing and storage.**

12.72.050 **Property lease authorization.**

12.72.060 **Payment of monthly rental.**

12.72.070 **Accounting for funds and property received.**

12.72.080 **Stolen motor vehicles—Storage, notice and removal requirements.**

12.72.010 Establishment and use—Police department jurisdiction.

There is established, under the jurisdiction of the police department, a tow-in lot, which is herein defined as a place where motor vehicles which are required to be removed from the streets and other public places of the metropolitan government area because of violations of traffic laws and regulations, penal ordinances of the metropolitan government and laws of the state and the United States, and which come into police custody by reason of such vehicles being stolen, abandoned or an obstruction to traffic, or of which the police department has acquired custody for the protection of motor vehicles and their safekeeping. (Prior code § 27-1-220)

12.72.020 Rules and regulations for operation and collection of storage charges.

The chief of police shall establish, by rules and regulations, the procedures for the operation of the tow-in lot and fix the methods of collecting storage charges. The chief of police shall also establish the rates of administrative fees related to operation of the tow-in lot, as approved by the finance director. The rates of administrative fees set by the chief of police shall be published for public viewing at the tow-in lot and a copy filed with the metropolitan clerk. Amendments to the rates shall similarly be published and filed. Such rates shall be no higher than necessary to cover the metropolitan government's costs of operating the tow-in-lot on an annual basis. (Amdt. 1 to Ord. BL2024-230 § 1, 2024; Ord. BL2024-230 § 1, 2024; prior code § 27-1-221)

12.72.030 Procedures for hauling vehicles to the lot—Reimbursement of costs.

The chief of police is authorized to establish or to approve the regulations and procedures by which motor vehicles shall be towed to the tow-in lot, and to arrange for the payment of the cost of towing vehicles to the lot in those instances where the towing or hauling to the lot is done on the direction of the police department or any of its police officers acting according to the rules and regulations of the police department. The chief of police shall establish rules and regulations relating to the reimbursement of the department of police by the owners of the motor vehicles affected for the amount expended in tow-in charges for hauling such vehicles to the lot. (Prior code § 27-1-222)

12.72.040 Charges for towing and storage.

Charges for towing and storage of vehicles shall be made in accordance with Section 6.80.550 of the Metropolitan Code. (Ord. BL2006-1094 § 3, 2006 ; prior code § 27-1-226)

12.72.050 Property lease authorization.

The mayor is authorized to execute the necessary documents to lease property for use as a police tow-in lot. (Prior code § 27-1-223)

12.72.060 Payment of monthly rental.

The monthly rental to be paid shall, for the tow-in lot, be expended from the police department's operating budget. (Prior code § 27-1-224)

12.72.070 Accounting for funds and property received.

The director of finance shall establish, by appropriate accounting procedures, a revolving account for the police tow-in, so that full accountability will be made of all property and money received and expended by the police department in connection with the operation of the police tow-in lot. The director of finance shall approve all rules and regulations of the police department relating to accounting procedures with reference to the operation of the police tow-in lot. (Prior code § 27-1-225)

12.72.080 Stolen motor vehicles—Storage, notice and removal requirements.

A. The chief of police, or his designated representative, shall notify all owners of stolen motor vehicles, upon receipt of such vehicles at the metropolitan tow-in

lot. Owners of stolen vehicles shall reclaim their vehicles within twenty-four hours of being notified by the police department, and shall not be charged a storage fee.

B. If the owner fails to reclaim his vehicle and remove same from the tow-in lot within twenty-four hours after being notified, the owner shall be charged the regular storage fee from the time and date of receipt of the automobile at the tow-in lot.

C. The provisions of this section shall apply only to those owners of stolen motor vehicles who have reported their automobile stolen to the metropolitan police department prior to recovery of their motor vehicle by the police department. (Prior code § 27-1-227)

Chapter 12.76

RAILROADS AND GRADE CROSSINGS

Sections:

12.76.010	**Survey and classification of railroad grade crossings—Rules and regulations for use.**
12.76.020	**Speeds for railroad trains.**
12.76.030	**Flashing signals—Required at grade crossings—Specifications.**
12.76.040	**Flashing signals—Location.**
12.76.050	**Flashing signals—Operation.**
12.76.060	**Flashing signals—Installation and maintenance.**
12.76.070	**Flashing signals—Right to withdraw permission for operation.**
12.76.080	**Gates or flagmen required at crossings when.**
12.76.090	**Vehicles to obey signals indicating approach of trains.**
12.76.100	**Grade crossings where all vehicles must stop.**
12.76.110	**Vehicles which must stop at all grade crossings.**
12.76.120	**Liability limitations concerning signal lights and appurtenances.**
12.76.130	**Bridges and other structures over public ways.**
12.76.140	**Tunnels near or under streets.**
12.76.150	**Loitering around railroad depot, tracks or yard prohibited.**
12.76.160	**Children loitering near railroad tracks—Parent or guardian responsibility.**
12.76.170	**Children loitering near railroad tracks—Arrest authorized when.**

12.76.010 Survey and classification of railroad grade crossings—Rules and regulations for use.

A. The traffic and parking commission is authorized to survey all railroad grade crossings with public traffic ways within the boundaries of Metropolitan Nashville and Davidson County, Metro Government, for the purpose of classifying these crossings according to their needs for corrective treatment to reduce and/or prevent vehicle-railroad train accidents.

1. The commission shall consider, among other factors, the accident frequency at the crossing, vehicle and train traffic volumes at the crossing, and sight distance for both the railroad train and vehicle approach to the crossing.

2. The manner in which these factors are established and considered shall be at the discretion of the traffic and parking commission.

B. The commission shall classify all railroad crossings with vehicle traffic ways under the following categories:

1. Requires crossing gate and light and audible signal within six months after reporting date;

2. Requires light and audible signals within six months after reporting date;

3. Requires light and sound signal within twelve months after reporting date;

4. Requires light and sound signals within eighteen months from reporting date;

5. Requires immediate removal of hedges, shrubbery and other sight distance obstructions;

6. Requires immediate application of railroad crossing signs or flagmen;

7. Requires no corrective treatment within eighteen months of reporting date.

C. The commission shall annually file a report with the director of public works and the railroads owning the tracks at each crossing the name, location and classification of each crossing, along with corrective measures; specifications and locations of signals and/or other corrective measures will be included.

1. Nothing herein shall be deemed to preclude the reporting of partial lists.

D. The railroads owning tracks at each railroad grade crossing with vehicle traffic way shall be responsible for the costs of implementation and material acquisition of the corrective measures, including gates, signals, etc., designated by the traffic and parking commission.

E. The traffic and parking commission shall be responsible for the supervision and approval of the installation of all signals and gates.

F. The traffic and parking commission shall notify the railroad of condition changes requiring revisions in the safety devices, including gates and/or signals. The railroads will be given three months, upon notice, to make changes.

G. Specifications for all crossing vehicle traffic-control devices, such as signs, signals, gates, etc., shall be approved by the commission.

H. Should any railroad responsible for the corrective treatment provided herein fail to provide, install and maintain designated control or warning devices, the traffic and parking commission shall close the railroad tracks to trains at the crossing. Should this crossing be ordered opened by the Interstate Commerce Commission or a court of competent jurisdiction, the traffic and parking commission shall provide emergency controls, by flagmen or otherwise, for which the railroad will be

charged one hundred dollars per day as a reasonable cost for providing such emergency warning or control. If more than one railroad owns tracks at the crossing, the assessment will be prorated according to number of tracks owned.

I. In the event corrective measures (signals, gates, shrubbery, etc.) are not completed as required, the traffic and parking commission will contract for and provide required corrective measures. The cost, as determined by the metropolitan government bidding procedures, shall be fully borne by the railroads owning tracks at the grade crossing, and shall constitute a debt to the metropolitan government; prorate responsibility for the cost shall be as set forth in subsection H of this section.

J. In addition to the actions provided in subsections H and I of this section, each railroad shall in no wise affect the liability of the railroad under this regulation.

K. No train of railroad cars, or individual car, shall remain in such a position as to block automobile traffic for more than five minutes. There shall be a minimum period of twenty-five minutes between each such blockage of automobile traffic.

L. It shall not be necessary that the individual operator of a train be served with a warrant. The owner of the railroad or lead engine shall be considered prima facie to be in control of the engine and cars linked thereto.

M. Any ordinance of regulation of the Metropolitan Code in conflict with any provision herein is declared void to the extent it conflicts.

N. Should any provision or section of this regulation be declared unconstitutional or otherwise void, the remaining regulations and provisions or sections shall remain in effect. (Prior code § 27-1-40)

12.76.020 Speeds for railroad trains.

A. Definitions.

1. The United States Federal Railroad Administration has established a railroad track classification system which governs the permissible speeds of railroad trains, as follows:

Track Classification	Maximum Speed for Freight Trains	Maximum Speed for Passenger Trains
Class 1 track	10 m.p.h.	15 m.p.h.
Class 2 track	25 m.p.h.	30 m.p.h.
Class 3 track	40 m.p.h.	60 m.p.h.
Class 4 track	60 m.p.h.	80 m.p.h.

2. "Main line trackage" means all trackage maintained at Class 4 standards or above, serving as main arteries in Metropolitan Nashville to and from Memphis, Chicago, Atlanta, Louisville and Birmingham.

3. "Inner city," for the purpose of this section, means that portion of main line trackage located between the west edge of the Clifton Pike grade crossing on the west and the east edge of the Fourth Avenue South grade crossing on the east, and between the east side of the Cumberland River drawbridge on the north and the south edge of the Berry Road grade crossing on the south.

B. Maximum Speeds. Except where otherwise required pursuant to subsection D of this section, the maximum speed of train engines or individual cars shall be as follows:

1. Within the inner city upon main line trackage and upon all yard and industrial trackage, twenty-five miles per hour;

2. Upon the Memphis main line trackage:

a. From the Cheatham/Davidson County line to the west edge of the Sawyer Brown Road overpass, forty-five miles per hour,

b. From the west edge of the Sawyer Brown Road overpass to the inner city, forty miles per hour;

3. Upon the Evansville and Louisville main line trackage:

a. From the Sumner/Davidson County line to the north edge of the Nesbitt Lane grade crossing, forty-five miles per hour,

b. From the north edge of the Nesbitt Lane grade crossing to the inner city, forty miles per hour;

4. Upon the Atlanta main line trackage:

a. From the Rutherford/Davidson County line to the south edge of the Antioch Pike grade crossing, forty-five miles per hour,

b. From the south edge of the Antioch Pike grade crossing to the inner city, forty miles per hour;

5. Upon the Lebanon Branch, beginning at the south edge of the Berry Road grade crossing and traveling north and east to the Wilson/Davidson County line, and upon the Birmingham main line (Class 3 trackage), from the south edge of the Berry Road grade crossing to the Davidson/Williamson County line on the south, thirty-five miles per hour;

6. Upon all other trackage, twenty-five miles per hour.

C. Reclassification. Should any main line trackage within the corporate limit of Metropolitan Davidson County, outside of the inner city area, be given a Federal Railroad Administration classification for speed below any maximum speed limit allowed herein, the railroad owning such trackage shall notify the traffic and parking commission of such reclassification within thirty days of the reclassification; however, short-term repair reclassifications are exempt from these provisions.

D. Declaration of Speed by Traffic and Parking Commission. Whenever the traffic and parking commission shall determine upon the basis of an engineering and traffic investigation that any maximum speed hereinbefore set forth is greater than is reasonable or safe under the conditions found to exist at any grade crossing within the boundaries of Nashville and Davidson County, the commission may determine and declare a reasonable and safe maximum or minimum limit thereof, which speed limit shall be effective upon notice to the affected railroad by registered mail, return receipt requested, to the highest ranking operating officer in Davidson County. Any railroad so affected may request reconsideration by the commission to be made within forty-five days, and the effect of the declared speed limit shall be stayed pending such reconsideration.

E. Violations. It is unlawful for any engine or individual cars to operate upon a grade crossing at a speed in excess of that declared by the commission. (Prior code § 27-1-41)

12.76.030 Flashing signals—Required at grade crossings—Specifications.

There shall be erected at all grade crossings on main lines of railroads over which road trains are operated, except as expressly excepted by ordinance, flashing lights showing a red light and the word "Stop" when a train, engine or cars are approaching. These lights shall be erected on each side of the railroad crossings, and on the right of a person approaching the crossing. The lights shall be affixed to a metal post, at the top of which shall be a warning gong. The gong shall be approximately ten feet above the sidewalk level and the lights shall be approximately eight and one-half feet above the sidewalk level. (Prior code § 35-1-6)

12.76.040 Flashing signals—Location.

The lighting fixtures at each of the grade crossings shall be located not farther than fifteen feet away from the nearest railroad track. However, if, in the opinion of the director of public works and the chief engineer of the railroad affected, a different location or different specifications would more effectively serve the crossing which is to be protected, they shall certify in writing the agreed location and the agreed specifications, and it shall be lawful to erect the lights as designated in the certificate, a copy of which shall be filed with the metropolitan clerk. (Prior code § 35-1-7)

12.76.050 Flashing signals—Operation.

The red lights on flashing warning signals shall flash and the gongs ring continuously for a sufficient time prior to the approach of trains, engines and cars on the railroad tracks to sufficiently warn vehicular and pedestrian traffic on the streets until the trains, engines or cars have entirely occupied the street crossing. (Prior code § 35-1-8)

12.76.060 Flashing signals—Installation and maintenance.

The erection and maintenance of flashing lights and appurtenances shall be without expense to the metropolitan government and under the supervision of the director of public works. (Prior code § 35-1-9)

12.76.070 Flashing signals—Right to withdraw permission for operation.

The metropolitan government reserves the right to withdraw the permission for the operation and maintenance of the flashing lights and signals at any time that the welfare of the metropolitan government may require such action. (Prior code § 35-1-10)

12.76.080 Gates or flagmen required at crossings when.

None of the crossing gates or crossing flagmen now in service shall be withdrawn from any crossings until the flashing lights and signals herein required are installed and in proper working order. (Prior code § 35-1-11)

12.76.090 Vehicles to obey signals indicating approach of trains.

A. Whenever any person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this section, the driver of such vehicle shall stop within fifty feet but not less than fifteen feet from the nearest rail of such railroad, and shall not proceed until he can do so safely. The foregoing requirements shall apply when:

1. A clearly visible electric or mechanical device gives warning of the immediate approach of a railroad train;

2. A crossing gate is lowered, or when a human flagman gives or continues to give a signal of the approach or passage of a railroad train;

3. A railroad train approaching within approximately one thousand five hundred feet of the highway crossing emits a signal audible from such distance, and such railroad train, by reason of its speed or nearness to such crossing, is an immediate hazard;

4. An approaching railroad train is plainly visible and is in hazardous proximity to such crossing.

B. No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad crossing while such gate or barrier is closed or is being opened or closed.

C. Section 12.84.020 sets out the penalty for violation of subsections A and B of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (62), 1990; prior code § 27-1-186)

12.76.100 Grade crossings where all vehicles must stop.

A. The traffic and parking commission will designate particularly dangerous highway grade crossings of railroads, and will cause to be erected stop signs thereat. When such stop signs are erected, the driver of any vehicle shall stop within fifty feet but not less than fifteen feet from the nearest rail of such railroad, and shall proceed only upon exercising due care.

B. Section 12.84.020 sets out the penalty for violation of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (63), 1990; prior code § 27-1-187)

12.76.110 Vehicles which must stop at all grade crossings.

A. The driver of any motor vehicle carrying passengers for hire, or of any school bus carrying any school child, or of any vehicle carrying explosive substances or flammable liquids as a cargo or part of a cargo, before crossing at grade any track or tracks of a railroad, shall stop such vehicle within fifty feet but not less than fifteen feet from the nearest rail of such railroad, and while so stopped shall listen and look in both directions along such track for any approaching train, and for signals indicating the approach of a train, except as hereinafter provided, and shall not proceed until he can do so safely. After stopping as required herein and upon proceeding when it is safe to do so, the driver of any such vehicle shall cross only in such gear of the vehicle that there will be no necessity for changing gears while traversing such crossing and the driver shall not shift gears while crossing the track or tracks.

B. No stop need be made at any such crossing where a police officer or a traffic-control signal directs traffic to proceed.

C. This section shall not apply at street railway grade crossings within a business or residence district.

D. Section 12.84.020 sets out the penalty for violation of subsection A of this section. (§ 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (64), 1990; prior code § 27-1-188)

12.76.120 Liability limitations concerning signal lights and appurtenances.

The railroads shall save the metropolitan government harmless from all claims, suits and actions, or other costs, judgments or loss incident to, growing out of or in any wise connected with the erection, maintenance and operation of the signal lights and appurtenances herein required. (Prior code § 35-1-12)

12.76.130 Bridges and other structures over public ways.

All railroad companies whose roads cross any street or alley by trestle or overhead structure shall put a safe and sufficient bridge over such street or alley, which bridge shall be erected in accordance with reasonable plans and specifications approved by the director of public works; provided, that this section shall not apply to existing structures. (Prior code § 35-1-2)

12.76.140 Tunnels near or under streets.

A. Where the tunnel on the line of any railroad within the metropolitan government area begins or ends at or near the line of any street or alley, it shall be the duty of the railroad company to extend the tunnel to a proper distance beyond the line of the street or alley, and also to keep securely barricaded a space of at least ten feet high above the entrance of the tunnel, and otherwise, if necessary, make provision by the adoption of reasonably prudent precautions for the safety of users of the highway who are exposed to danger when at or near the entrance of any tunnel.

B. When the tunnel runs under any street or alley, it shall be the duty of the railroad company to build the walls firmly and substantially, and to cover over compactly the top of the tunnel so as to prevent the issuance of smoke or cinders through any crevice in the framework or walls, and also to sufficiently barricade in both sides of any embankment connecting with other streets or roads, made necessary in consequence of the situation of the tunnel, and put barricades along the top of the tunnel at all points where the same is dangerously elevated above the level of the adjoining ground. (Prior code § 35-1-1)

12.76.150 Loitering around railroad depot, tracks or yard prohibited.

It is unlawful for any person, without the consent of the owner or other person in charge thereof, to go upon, over, across or through, or to loiter in or around, or otherwise trespass upon any railroad depot, station, switchyard, track or right-of-way or other place where dangerous machinery is usually in operation. This shall not apply to any railroad track at public street crossings, nor to any railroad track on any public street. (Prior code § 35-1-5)

12.76.160 Children loitering near railroad tracks—Parent or guardian responsibility.

It is unlawful for children, without a protector or guardian, to loiter in or about railroad depots, tracks, etc., and it shall be the duty of all parents or guardians of minor children, who have not arrived at the years of discretion, to prevent such children or wards from loitering in or about any railroad depot, etc. (Prior code § 35-1-3)

12.76.170 Children loitering near railroad tracks—Arrest authorized when.

It shall be the duty of all police officers of the metropolitan government, and police and watchmen employed by any of the railroad companies in the metropolitan government area, or any other officers who may be clothed by the metropolitan government with police powers, to immediately arrest and take into custody any child or children found loitering around, in or about any railroad depot, track, etc. (Prior code § 35-1-4)

Chapter 12.80

FERRIES

Sections:

12.80.010	**User fees for metropolitan government ferries.**
12.80.020	**Regulations filed with department of public works.**

12.80.010 User fees for metropolitan government ferries.

A. A user fee of one dollar per vehicle shall be imposed and collected by the metropolitan government for each trip on any ferry owned and/or operated by the metropolitan government; provided, however, that the said ferry shall operate only nine hours per day, Wednesday through Sunday of each week.

B. Provided further, that the department of public works shall report to the council the results of the operation of the Cleece's Ferry with the imposition of such fee with limited hours after three complete months of operation. (Amdt. 2 to Ord. 90-1106, 3/20/90; Amdt. 1 to Ord. 90-1106, 3/20/90; Ord. 90-1106 § 1, 1990)

12.80.020 Regulations filed with department of public works.

The metropolitan clerk is directed to send a copy of the ordinance codified in this chapter to the department of public works. (Ord. 90-1106 § 2, 1990)

Chapter 12.84

VIOLATIONS—FINE SCHEDULES

Sections:

12.84.010	**Violation—Penalties.**
12.84.020	**Violation—Penalties.**
12.84.030	**Violation—Penalties.**

12.84.010 Violation—Penalties.

(A) The following non-moving traffic violations are punishable according to the provisions of Section 1.01.030:

1. Section 12.08.080, State registration plates—Required—Mounting and maintenance;
2. Section 12.08.090, State registration plates—Unlawful use;
3. Section 12.32.010, (A) through (D), Horns and warning devices;
4. Section 12.32.020, Brake equipment;
5. Section 12.32.030, Lighted lamps and illuminating devices required when;
6. Section 12.32.050, Mufflers—Prevention of noise, fumes and smoke;
7. Section 12.32.060, Mud flaps for heavy vehicles;
8. Section 12.32.070, Red lights—Unauthorized use prohibited;
9. Section 12.32.080, Blue lights—Unauthorized use prohibited;
10. Section 12.64.030(A) and (B), Footrest and handlebar requirements;
11. Section 12.64.040, Equipment required for motorcycle riders. (Ord. BL2010-793 § 16, 2010; Ord. 95-1329 § 2 (part), 1995; § 4 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; § 2 (part), of Amdt. 1 to Ord. 90-1255, 6/19/90; Ord. 90-1255 § 4 (part), 1990)

12.84.020 Violation—Penalties.

(A) The following moving traffic violations are punishable according to the provisions of Section 1.01.030:

1. 12.12.020(B), Turning markers—Placement authority and driver obedience;
2. 12.12.030(B), Restricted turn signs—Placement authority and driver obedience;
3. 12.12.050, Obedience to traffic-control devices;
4. 12.12.100(A)(1), (A)(2), Flashing control signals;
5. 12.12.120, Lane direction control signals;
6. 12.12.160, Play streets—Driving limitations;
7. 12.16.010(A) and (B), Driving on right side of roadway required—Exceptions;
8. 12.16.020(A) and (B), Overtaking a vehicle on the left;
9. 12.16.030, Passing vehicles proceeding in opposite directions—Narrow roadways;
10. 12.16.040(A) and (B), Passing on right permitted when;
11. 12.16.050, Overtaking on the left;
12. 12.16.060(A), Driving on left side of roadway prohibited—Exceptions;
13. 12.16.070, Driving on divided highways;
14. 12.16.080, Controlled-access roadways—Entrance and exit restrictions;
15. 12.16.090(B), Controlled-access roadways—Use restrictions and traffic-control devices;
16. 12.16.100(A), No-passing zones;
17. 12.16.110(A) through (D), Turning movements and required turning signals;
18. 12.16.120(A) and (B), Turn signal procedures;
19. 12.16.130, Hand and arm signals;
20. 12.16.140(A) through (C), Position of vehicles when turning at intersections;
21. 12.16.150(A), Yield right-of-way—Vehicles at intersections;
22. 12.16.160, Yield right-of-way—Vehicles turning to the left;
23. 12.16.170(A) and (B), Turning to go in opposite direction;
24. 12.16.190, Starting parked vehicles;
25. 12.16.200(A) through (C), Following too closely;
26. 12.16.210, Cutting through private property prohibited;
27. 12.16.220, Driving on streets under construction prohibited;
28. 12.16.230, Driving through safety zones prohibited;
29. 12.20.040(A), Speed limitations for certain vehicles and conditions;
30. 12.20.060, Alleys;
31. 12.24.050, Vehicles emerging from alley, driveway or building;
32. 12.24.060, Obstructing intersections—Entry restrictions;
33. 12.28.030(C), Changes of traffic direction at certain locations or during certain hours—Left-turn lanes;
34. 12.36.010(A), Application of chapter provisions—Exceptions;
35. 12.36.020, Width of vehicles;
36. 12.36.030, Loads projecting from passenger vehicles;
37. 12.32.040, Projecting loads—Lamps or flags required when;
38. 12.36.040(A) and (B), Height and length of vehicles and loads;

39. 12.36.050(A) and (B), Special load limits—Pole trailers and structural materials;

40. 12.36.060(A) and (B), Spilling or dropping of loads—Preventive measures required;

41. 12.36.070, Gross weight per axle of vehicles and loads;

42. 12.36.080(D), Permits for excess size and weight;

43. 12.36.100(B), Heavily traveled streets—Non-motorized and other vehicle restrictions;

44. 12.36.110, Load restrictions;

45. 12.52.050, Right-of-way on sidewalks;

46. 12.52.060(B), Pedestrians using white canes or sticks;

47. 12.52.070, Blind pedestrians;

48. 12.52.120, Driver responsibilities;

49. 12.64.020(A) through (D), Manner of riding—Restrictions;

50. 12.64.050(A) through (D), Operating procedures on laned roadways;

51. 12.64.060, Clinging to other vehicles;

52. 12.68.010, Drivers in processions;

53. 12.68.020, Funeral procession identification;

54. 12.68.040, Following fire apparatus;

55. 12.68.050, Driving over fire hose;

56. 12.68.060, Causing unnecessary traffic congestion—Regulations in shopping center parking lots;

57. 12.68.070, Opening doors into traffic;

58. 12.68.080, Backing of vehicles—Restrictions;

59. 12.68.090, Coasters, roller skates and other toy vehicles;

60. 12.68.120, Detour signs—Driver obedience required;

61. 12.68.140, Riding on portions of vehicle not intended for passengers;

62. 12.68.160, Boarding or alighting from moving vehicles;

63. 12.76.090(A) and (B), Vehicles to obey signals indicating approach of trains;

64. 12.76.100, Grade crossings where all vehicles must stop;

65. 12.76.110(A), Vehicles which must stop at all grade crossings.

66. 12.62.040(O) and (P), Operating a powered SUMD by a person who is less than eighteen years old.

(Ord. BL2018-1441 § 13, 2019; Ord. BL2010-793 § 17, 2010; Ord. BL2010-748 § 2, 2010; Ord. 98-1447 § 9, 1999; Ord. 95-1329 §§ 2 (part), 8 (part), 1995; § 1 (part) of Amdt. 2 to Ord. 90-1255, 7/17/90; Ord. 90-1255 § 1 (part), 1990)

12.84.030 Violation—Penalties.

(A) The following moving traffic violations are punishable according to the provisions of Section 1.01.030:

1. 12.12.090, Signal legend—Colors and other indications;

2. 12.12.110, Traffic lanes;

3. 12.20.010, Reasonable speed under the conditions;

4. 12.20.020, Maximum speed limits;

5. 12.20.030, Special speed zones;

6. 12.20.070, School zone restrictions;

7. 12.20.080, Construction and demolition site restrictions;

8. 12.24.040, Procedures for vehicles entering stop or yield intersections;

9. 12.68.030, Driving through funeral procession;

10. 12.68.110(A) and (B), Towing of vehicles;

11. 12.68.130, Driving on sidewalks;

12. 12.68.150(A) through (C), Putting glass, nails or other injurious materials on highway—Clearing accident wreckage;

13. 12.68.170, Careless driving;

14. 12.68.180, Reckless driving;

15. 12.68.200, Attempting to elude police officers.

(Ord. BL2016-223 § 2, 2016; Ord. BL2010-793 § 18, 2010; Ord. 98-1447 § 10, 1999; Amdt. 1 to Ord. 96-245, 4/16/96; Ord. 96-245 § 2, 1996; Ord. 95-1329 § 8 (part), 1995)

Title 13

STREETS, SIDEWALKS AND PUBLIC PLACES

Chapters:

Division I. General Regulations

13.02 General Provisions
13.04 Official Street Map
13.08 Streets, Alleys and Sidewalks
13.10 Acceptance of Private Roads
13.12 Driveways
13.16 Encroachments
13.18 Management of Public Rights-of-Way for Make Ready Work
13.20 Excavations and Obstructions
13.21 Nashville Department of Transportation Participation Agreements
13.24 Parks, Recreational Facilities and Cemeteries
13.26 Naming of Public Buildings
13.27 Dynamic Symbol of Access

Division II. Urban Services District Regulations

13.28 House Numbering System
13.32 Street and Sidewalk Regulations
13.36 Reserved
13.40 Parking Lots, Decks and Garages

Division I. General Regulations

Chapter 13.02

GENERAL PROVISIONS

Sections:

13.02.010 **Fees, in-lieu contributions and other assessments, estimates or payments.**

13.02.010 Fees, in-lieu contributions and other assessments, estimates or payments.

Fees, in-lieu contributions and other assessments, estimates or payments required by this title or by the metropolitan government in furtherance of this title for single or multi-phase developments shall be determined by the fee or rate at the time of assessment or payment, whichever is later. The Metropolitan Government of Nashville and Davidson County may update fees and rates over time to reflect current standards and/or changes in market rates. (Ord. BL2014-947 § 1, 2014)

Chapter 13.04

OFFICIAL STREET MAP

Sections:

13.04.010	**Definitions.**
13.04.020	**Adoption.**
13.04.030	**Recordation.**
13.04.040	**Amendments—Approval required—Traffic study.**
13.04.050	**Additions—Prerequisites.**
13.04.060	**Property identification required for adoption or amendment.**
13.04.070	**Adoption of map does not establish street.**
13.04.080	**Building between mapped street lines prohibited.**
13.04.090	**Board of adjustment.**
13.04.100	**Building restrictions—Relief from hardship procedure.**
13.04.110	**Building permit—Issuance when—Expiration.**
13.04.120	**Judicial review of decisions of board of adjustment.**
13.04.130	**Zoning regulations not affected.**
13.04.140	**Liberal construction.**
13.04.150	**Violations.**

13.04.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Board" means the board of adjustment established by this chapter.

"Building" means any building, structure or improvement of any kind or part thereof which, through erection, construction, reconstruction, addition or alteration in any manner, becomes a part of the realty.

"Officially mapped street" means any street which has been made a part of the official street map according to the provisions of this chapter.

"Official street map" means the official street map of the Metropolitan Government of Nashville and Davidson County, Tennessee.

"Street" means any public way or part thereof, including but not limited to a boulevard, avenue, highway, road, lane or alley. (Prior code § 38-1-18)

13.04.020 Adoption.

The streets described on a map entitled "The Official Street Map of The Metropolitan Government of Nashville and Davidson County, Tennessee," which map is hereby made a part of this chapter, are hereby adopted and approved as the official street map for the metropolitan government. (Prior code § 38-1-19)

13.04.030 Recordation.

The metropolitan clerk shall have the adopted official street map recorded in the office of the Davidson County Register. (Prior code § 38-1-20)

13.04.040 Amendments—Approval required—Traffic study.

A. Amendments of the official street map shall be made in the manner required for original adoption. Any proposed addition, change or modification of the official street map which has not been certified by the planning commission shall be submitted to the planning commission for its approval before any decision by the metropolitan council on the addition, change or modification. The planning commission shall have thirty days after the submission to them within which to send its report to the metropolitan council, unless such time is extended by the metropolitan council. In the event of the planning commission's disapproval, the addition, change or modification shall require the favorable vote of a majority of the entire membership of the metropolitan council before the addition, change or modification becomes a part of the official street map.

B. The chief traffic engineer shall file with the metropolitan council a traffic study on each proposed addition, change or modification of the official map, which study shall include but not be limited to the amount and direction of traffic involved, the impact on traffic flow, and the manner in which such traffic and traffic flow shall be rerouted or accommodated if such amendment is adopted. The foregoing to the contrary notwithstanding, in the event the chief traffic engineer determines that less than one thousand vehicles per day will be affected, the study shall not be required. (Prior code § 38-1-30)

13.04.050 Additions—Prerequisites.

A. Where the street being designated as an "officially mapped street" is designated by the state or federal government as a state or federal highway, that street shall not be placed on the official street map until the appropriate federal or state agency has certified in writing to the metropolitan council that sufficient funds are available to the metropolitan government for the acquisition of the right-of-way for the proposed street and agreeing to the procedures for the acquisition of such right-of-way as outlined in Section 13.04.100.

B. Before submission of the official street map or an amendment thereto, the director of finance shall certify in writing to the metropolitan planning commission whether

or not sufficient funds are available or whether or not a sufficient revenue authorization has been made to cover the anticipated cost of acquiring the right-of-way for the proposed street.

C. Neither the official street map nor any amendment thereto shall be certified to the metropolitan council by the planning commission unless the director of finance certifies that sufficient funds are available or that a sufficient revenue authorization has been made to cover the anticipated cost of acquiring the right-of-way for the proposed street. (Prior code § 38-1-21)

13.04.060 Property identification required for adoption or amendment.

The official street map adopted in this chapter or any amendment hereafter adopted shall be sufficiently definite so as to identify the property that may be taken. (Prior code § 38-1-22)

13.04.070 Adoption of map does not establish street.

The making or certifying of a map by the planning commission or the adoption or amendment of the official street map by the metropolitan council shall not constitute the opening or establishment of any street or the taking or acceptance of any land for street purposes by the metropolitan government. (Prior code § 38-1-23)

13.04.080 Building between mapped street lines prohibited.

In order to preserve the integrity of the official street map and subject to the provisions of Sections 13.04.090 and 13.04.100, no building shall be constructed on any land located on or between the mapped lines of any street as shown on the official street map. The director of the department of codes administration or his duly authorized agent shall not issue any building permit in violation of this section. (Prior code § 38-1-24)

13.04.090 Board of adjustment.

A. There is created a board of adjustment composed of five members, who shall be residents of the metropolitan government area and who shall hold no other public office, either elective or appointive, and who shall serve without compensation. The members of the board shall be appointed by the mayor, with the approval of the metropolitan council. The members of the board of adjustment shall be appointed for terms of five years; except, that the term of those first appointed shall be as follows: One member shall be appointed for a term of one year, one member for a term of two years, one member for a term of three years, one member for a term of four years and one member for a term of five years. When a position on the board becomes vacant, leaving an unexpired term, that vacancy shall be filled in the same manner as in the case of the original appointments. The person appointed to fill the vacancy shall then serve the remainder of the unexpired term. After a public hearing and upon written charges, the mayor and the metropolitan council may remove any member of the board for just cause.

B. When not inconsistent with this chapter, the board shall adopt rules for its organization and procedure, the selection of its officers and the keeping of a public record. Before adoption, all rules shall be submitted to the director of the legal department of the metropolitan government for his approval as to legality. After the rules have been approved by the director of law and adopted by the board, the board shall immediately cause the rules to be filed with the metropolitan clerk.

C. The board shall provide for the establishment of regular meetings to be held at least once a month, unless there is no business pending before the board, and for the calling of special meetings.

D. The metropolitan planning commission, under the direction of its executive director, shall provide the staff necessary to serve the board in the conduct of its business. The cost of this staff and other necessary services shall be included in the operating budget of the metropolitan planning commission. (Prior code § 38-1-25)

13.04.100 Building restrictions—Relief from hardship procedure.

A. The owner of any land located in whole or in part within the boundary of an officially mapped street, claiming a hardship by reason of the provisions of this chapter, may apply to the board of adjustment requesting relief from the hardship.

1. Where the relief requested involves the issuance of a building permit, the application to the board shall be in writing and shall contain the following:

a. A clear statement of the hardship and the relief requested;

b. A site plan showing the size and location of the property and the improvements proposed;

c. The estimated cost of the improvements proposed.

2. In all other cases, the application shall comply with only paragraph (a) above.

B. Before taking any action on an application, the board shall hold a public hearing, fifteen days prior notice of the time and place of which shall be given to the

applicant by certified mail at an address specified in the application and to other interested persons by one publication in one newspaper of general circulation at least fifteen days prior to this hearing. Notice of the public hearing shall be given by mail to the mayor, the director of public works, the director of public property, the director of finance, the chairman of the public works committee of the metropolitan council and the councilman of the councilmanic district within which the property upon which the application is made is located. The state highway commissioner shall be notified by mail of those matters involving state or federal highways.

C. At the hearing, the board of adjustment shall provide for the taking of evidence either in oral or written form. The board may consider facts not presented by the parties, but when these facts are considered, they must be clearly identified as such, and the party adversely affected shall be given an adequate notice and opportunity to rebut those facts.

D. The board of adjustment shall render its decision within thirty days from the date of the hearing unless an extension of time is agreed to by the applicant. In its decision, the board shall state the facts upon which the decision is based, and, at the time the decision is rendered, the decision shall be entered on and made a part of the board's public record.

E. A majority of the authorized membership of the board of adjustment shall constitute a quorum and the concurrence of a majority of the authorized members shall be required before any action can be taken by the board. In addition to the five permanent members of the board, the mayor, with the approval of the metropolitan council, may appoint one alternate member who shall serve as a regular member only when it is impossible to obtain a quorum without the presence of the alternate member.

F. In making its decision, the board shall either grant relief, modify the application and grant relief for the modified application or deny relief.

G. Before any relief can be granted, the board of adjustment must find the following: That the applicant's property, in its existing condition, will not yield a reasonable return on its value to the owner or that the applicant has a specific and unique hardship which does not generally prevail throughout the surrounding area, or both.

H. In addition to the above, the board must also find that the granting of the relief would not materially increase the cost to the public of opening or improving the mapped street involved.

I. As a condition to the granting of relief, the board may modify the application, except for applications to purchase. The modifications imposed shall result in a minimum easing of the requirements of this chapter, and yield to the owner a fair and reasonable return on the value of his property. In either granting relief or modifying the application, the board shall endeavor at all times to preserve the integrity of the official street map.

J. In the event the decision of the board of adjustment is adverse to the owner of the property in denying a building permit or favorable to the owner on his application to purchase, the owner may, within thirty days after the decision of the board, notify in writing, the director of public works and the director of public property that he desires to sell his property. Notification in writing of the board's action shall be given the state highway commissioner in the event the property is mapped within state or federal highways. Upon the receipt of the written notification, the appropriate governmental official shall immediately endeavor to complete the acquisition proceedings of the subject properties involved in the application. In the event the governmental authorities are unsuccessful in acquiring the property by negotiation, evidence of which shall be by registered letter from the owner to such appropriate governmental authority stating that such owner will not undertake further negotiations, then such governmental authority shall initiate condemnation proceedings within ninety days from the receipt of such registered letter. (Prior code § 38-1-26)

13.04.110 Building permit—Issuance when—Expiration.

If the relief granted by the board of adjustment allows the department of codes administration to issue a building permit, a notification of such action shall be transmitted to the department of codes administration and the permit shall immediately be issued. However, unless the applicant proceeds to obtain a permit from the department of codes administration within thirty days from the date of the decision of the board, and begins construction within twelve months from the date of the issuance of the permit, the applicant shall not be entitled to proceed under the permit without filing a new application with the board as hereinafter provided. (Prior code § 38-1-27)

13.04.120 Judicial review of decisions of board of adjustment.

Judicial review of any decision of the board of adjustment shall be available under the provisions of Section 27-9-101 et seq. of the Tennessee Code Annotated. (Ord. 90-1339 § 1 (38-1), 1990; prior code § 38-1-28)

13.04.130 Zoning regulations not affected.

This chapter is intended to be subject to and does not, in any way, repeal, modify or amend any of the zoning laws now in effect within the metropolitan government area. (Prior code § 38-1-31)

13.04.140 Liberal construction.

It is the intention of the metropolitan council that this chapter be remedial, and, therefore, should be liberally construed. (Prior code § 38-1-32)

13.04.150 Violations.

No owner, lessee, tenant or the agent of any owner, lessee, tenant or any other person in control of any land located on or between the map lines of any street as shown on the official street map herein adopted, or as subsequently amended, shall erect or construct or cause to have constructed or erected, upon his land, any building in violation of any provision of this chapter. Each day during which the violation continues shall be deemed a separate offense. The director of law, in the name of the metropolitan government, or the state commissioner of highways, on behalf of the state, in matters involving state and federal highways, or any aggrieved, affected or interested person in his own name, may seek injunctive or other appropriate relief to end the violation. Under no circumstances, however, shall compensation by purchase or by the exercise of eminent domain be made for any buildings built in violation of this chapter. (Prior code § 38-1-29)

Chapter 13.08

STREETS, ALLEYS AND SIDEWALKS

Sections:

13.08.010	**Official street and alley acceptance and maintenance record—Adoption.**
13.08.015	**Street name changes—Procedure.**
13.08.020	**Naming of private streets and roads.**
13.08.025	**Honorary street signs.**
13.08.030	**Private installations in, on, over or under public way—Regulations.**
13.08.040	**Offering merchandise for sale on or near public property prohibited—Exceptions.**
13.08.050	**Obstructing visibility at intersections, driveways, or rights-of-way.**
13.08.060	**Street cleaning—Restricted hours of operation—Exceptions.**
13.08.070	**Transport of hazardous materials on public streets prohibited—Penalty.**
13.08.080	**Deployment of surveillance or electronic data gathering devices onto public rights-of-way requires metropolitan council approval.**
13.08.090	**Gravel runoff.**
13.08.100	**Truck vending permit program established.**

13.08.010 Official street and alley acceptance and maintenance record—Adoption.

A. There is created and established an official street and alley acceptance and maintenance record for the metropolitan government, which record is composed of a series of maps showing thereon, by words, lines or symbols, the dedicated streets and alleys which are accepted and maintained or abandoned for public maintenance by the metropolitan government. The official street and alley acceptance record herein established may be amended from time to time by ordinance of the metropolitan council setting out additions, deletions or any other amendments to such record.

B. The official street and alley acceptance and maintenance record shall be maintained in the office of the department of public works. The director of public works is authorized to note thereon any amendatory ordinance enacted by the metropolitan council.

C. Any person, other than an official or employee of the metropolitan government acting in their official capacity, making an application or request for an amendment to the official street and alley acceptance and maintenance record shall, in addition to filing the appropriate application or request with the department of public works, pay to the metropolitan government a fee to cover the cost of processing such application or request as established by the metropolitan council. (Ord. BL2014-996 §§ 2—5, 2015; Ord. 93-505 § 1, 1993; prior code § 38-1-1)

13.08.015 Street name changes—Procedure.

The following procedures and requirements shall apply to all street name changes proposed after the effective date of the ordinance codified in this section:

A. Before voting on an ordinance proposing a street name change, the metropolitan council shall forward the ordinance to the metropolitan planning commission and the emergency communications district board for its consideration. If the ordinance proposes to change a street name to that of a particular individual, the ordinance must be accompanied by a biographical sketch of that individual.

B. Upon being filed with the metropolitan clerk, an ordinance proposing a street name change shall also be forwarded to the metropolitan historical commission for review as to whether there is any historical significance associated with the existing street name. The historical commission shall provide a written report to the metropolitan council prior to the consideration of the ordinance on second reading stating the historical significance, if any, associated with the street name. No action shall be taken by the council on second reading until the report from the historical commission has been submitted to the council or sixty days has passed from the date the ordinance was forwarded by the metropolitan clerk to the historical commission.

C. Within ten days of receipt of the proposed ordinance, the planning commission shall notify all property owners on the street of the proposed name change, and shall indicate a period of time during which property owners may provide written comments in support of or in opposition to the proposed name change.

D. After consideration of the petition, the planning commission and emergency communications district board will provide the council with a recommendation

approving or disapproving the proposed change, and shall also forward all property owners' responses to the council for its consideration. No action shall be taken by the council on second reading until the report from the planning commission and emergency communications district board has been submitted to the council or sixty days has passed from the date the ordinance was forwarded by the metropolitan clerk to the planning commission and the emergency communications district board.

E. In considering a petition for a proposed street name change, the council shall take into consideration the recommendation of the planning commission and emergency communications district board. Further, the council shall only approve street name changes which meet the following requirements:

1. [Reserved];

2. No street shall be named for a living person;

3. Name changes must extend the entire length of a street;

4. There shall be no name changes for the purpose of promoting a private business. (Ord. BL2020-302 § 1, 2020; Ord. BL2019-110 § 1, 2020; Ord. BL2012-262 § 1, 2012; Ord. BL2010-789 § 1, 2010; Ord. BL2007-1309 § 1, 2007; Amdt. 2 to Ord. 93-638, 5/18/93; Amdt. 1 to Ord. 93-638, 5/18/93; Ord. 93-638 § 2, 1993)

13.08.020 Naming of private streets and roads.

A. The metropolitan county council deems that it may be necessary to name private streets and roads in order to provide better public services, particularly emergency services, to the residents of the Metropolitan Nashville area.

B. The term "private streets and roads" is defined as including any street, road or lane which has not been accepted by the metropolitan government for maintenance, whether or not it is within a public right-of-way, but shall exclude private driveways. Private roads may be named by the metropolitan county council and marked as such by the metropolitan government.

C. Any such naming shall be referred to the metropolitan planning commission for review and recommendation. (Prior code § 38-1-3)

13.08.025 Honorary street signs.

A. The council may, by ordinance, authorize and direct the department of public works to install honorary street signs beneath the official street name sign or on a separate post for any street identified on the official street and alley acceptance and maintenance map.

B. Such honorary street signs shall be brown in color with white lettering.

C. No honorary street sign shall be installed honoring a living person.

D. Honorary street names shall not be identified on any official maps prepared and maintained by the metropolitan government.

E. The department of public works shall absorb the costs for making and installing the signs for up to five honorary street names in each calendar year. A member of council shall not sponsor more than one ordinance in each calendar year naming an honorary street for which the costs of the signs are to be borne by the department of public works. The costs of making and installing signs for the sixth and subsequent honorary streets in each calendar year shall be privately funded. The department of public works shall determine the costs associated with making, installing, and maintaining such honorary street signs to be funded privately, and is authorized to accept the private funds to cover the costs prior to making and installing the signs.

F. Only two honorary street signs shall be installed per honorary street name; one at the beginning of the street and one at the end of the street. (Ord. BL2019-5 § 1, 2019; Amdt. 1 to Ord. BL2012-262 § 2, 2012; Ord. BL2012-262 § 2, 2012)

13.08.030 Private installations in, on, over or under public way—Regulations.

A. No person, firm or entity shall construct, install, operate and/or maintain an encroachment in, on, over, or under any street, road, alley, sidewalk or other public way except when permitted by the metropolitan government. Unless specifically permitted under other sections of this code, the metropolitan county council may by ordinance grant encroachments, permits or privileges to construct, install, operate and/or maintain an encroachment in, on, over, or under any street, road, alley, sidewalk or other public way.

B. Any person, firm or entity requesting an encroachment, permit or privilege as provided herein shall pay to the metropolitan government a fee in the amount of one hundred dollars upon making such request.

C. The manner of constructing, installing, operating and maintaining such encroachment shall be subject to the requirements, direction, and approval of the director of public works and further the person, firm, or entity requesting such encroachment, permit, or privilege shall provide a liability insurance policy in such amount as directed by the metropolitan attorney and in the form as approved by the metropolitan attorney, to save the metropolitan government harmless from all claims for damages that may result to person or property by reason of construction, operation, or maintenance of such installation of any encroachment. Provided, however,

that (i) a homeowner association legally constituted under Tennessee Law or (ii) a non-profit community organization exempt from taxation under section 501(3)(c) of the Internal Revenue Code may, without providing such insurance, install or construct an encroaching beautification project or sign if the director of public works has approved and determined in writing that installation of such project or sign is in the public interest and poses no risk of harm to the public. (Ord. BL2021-793 § 1, 2021; Ord. 2002-983 § 1, 2002; prior code § 38-1-2)

13.08.040 Offering merchandise for sale on or near public property prohibited—Exceptions.

A. No person shall stop, stand or park any wagon, pushcart, platform, table, automobile, truck or other vehicle, or erect any temporary stands, signs or otherwise, upon or within any public property or public right-of-way of the metropolitan government for the purpose of selling or offering for sale any goods, food, wares, merchandise, or products of any kind, nor shall any person sell or offer for sale, upon or within any public property or public right-of-way of the metropolitan government, any goods, food, wares, merchandise, or products of any kind, including the display or exhibition of animals for payment or gratuity. The prohibitions contained in this subsection shall not affect or apply to any agreement with, or the written approval of, the respective department, board, agency, officer, or other person having control or custody of that particular property.

B. 1. It is unlawful for any person to obstruct any public right-of-way, including alleys, roadways, sidewalks and streets as defined by Sections 12.04.010, 12.04.315, 12.04.335, and 12.04.375 of the Metropolitan Code, except as authorized by law. This subsection shall not apply to:

a. Any street vendor operating with a proper license and permit issued by the Davidson County Clerk or Public Works (also known as the Nashville Department of Transportation and Multi-modal Infrastructure, or "NDOT") under subsections (B)(3) and (4) of this section that satisfies this section and is vending in an approved location and not interfering with the movement of vehicular or pedestrian traffic or creating an unsafe condition;

b. Vendors exclusively engaged in the sale of newspapers, magazines, periodicals or other such written items provided that the requirements for clearance at intersections set forth at Section 13.12.190 are satisfied and who do not utilize a cart, wagon, or any other stationary or mobile device or vehicle to sell such written materials and not interfering with the movement of vehicular or pedestrian traffic or creating an unsafe condition;

c. Solicitation of donations by a nonprofit organization or the sale of merchandise by a nonprofit organization which constitutes, carries or makes a religious, political, educational, philosophical or ideological message or statement related to the purpose of the nonprofit organization provided that the non-profit identifies itself and is able upon request to provide documentary proof of its non-profit status, the requirements for clearance at intersections set forth at Section 13.12.190 are satisfied and the nonprofit does not utilize a cart, wagon, or any other mobile device or vehicle to sell such materials and is not interfering with the movement of vehicular or pedestrian traffic or creating an unsafe condition;

These exceptions shall operate to create a privilege and not a franchise or license. In the event the exceptions stated in this subsection are repealed or otherwise revoked, the provisions of this section shall then apply and any wagons, pushcarts, stands, signs, displays and any news and literature distribution racks no longer excepted shall be removed at the owner's expense.

2. Definitions. Within the meaning of this section, these terms shall be construed as follows:

a. "Commission" means the metropolitan traffic and parking commission.

b. "To obstruct" means to so occupy the public rights-of-way that the free use and enjoyment thereof by the public is in any way interrupted or interfered with, or such that the free ingress and egress to or from any building fronting on any public thoroughfare is impaired, or such that any unsafe condition results.

c. "Public right-of-way" means all areas legally open to public use and used and/or intended for vehicular or pedestrian traffic, including public streets, alleys, sidewalks, and roadways, but excluding any other public property of the metropolitan government.

d. "Public property" means all property, real and personal, belonging to the metropolitan government, excluding that which is used and/or intended for use by vehicular or pedestrian traffic and defined herein as a public right-of-way.

e. "Street vendor" or "vendor" means any individual, including an employee or agent of a group of individuals, partnership, or corporation, who sells, or offers to sell services, food, beverages, goods, or merchandise on any public way whether such activity involves the sale of such items from the vendor's person or by use of a stand.

f. "License" or "permit" means the form issued by the Davidson County Clerk or NDOT evidencing that the vendor is allowed to sell or offer to sell goods and services on the public right-of-way.

g. "Stand" means any table, tarp, display, bench, booth, rack (including one suspended from the vendor's person), handcart, pushcart, wagon or any other fixture or device which is not required to be licensed and registered by the Tennessee Department of Motor Vehicles, and is used for the display, storage, or transportation of food, beverages, goods, or merchandise on any public right-of-way.

h. "Special event" means any occasion officially recognized by the metropolitan government including, but not limited to, fairs, shows, exhibitions, municipality-wide celebrations, festivals, and other similar events, within a specifically defined area of the municipality for a specified period of time.

i. "Business" or "property owner" means any individual, including an employee or agent of a group of individuals, partnership, or corporation who is a tenant in or who owns property abutting the public right-of-way.

j. "Pedestrian" means a person who is walking or otherwise traveling on the public right-of-way.

k. "Sign" or "sandwich board" means any portable sign used to convey information of a commercial nature.

l. "Street performance" means any theatrical, musical, visual, or other presentation for entertainment purposes on the public right-of-way. "Street performer" means any person or group of persons who conducts a street performance.

m. "Distance." All measured distances and distance requirements addressed in this regulation shall be distances measured in a straight line from the nearest edge of the vendor's stand or sign to the nearest edge of the object from which the sign or stand is to be distant.

3. It is unlawful for vendors of goods or services not meeting the exception in subsection (B)(1)(b)—(c) of this section to sell, display, or offer for sale any food, beverage, goods, or merchandise on a public right-of-way before acquiring a street vendor's permit from the county clerk or NDOT. Those who engage in such conduct without having and displaying a valid permit (or while their permit is suspended, revoked, or expired) may be prosecuted for a violation of Tenn. Code Ann. Section 39-17-307 and/or Tenn. Code Ann. Section 62-30-101 et seq. To acquire a permit, a vendor shall submit an application to the county clerk or NDOT and provide all information, on a form supplied by the county clerk or NDOT, necessary to determine whether a particular permit may be issued.

a. The application shall include the vendor's full name, home address, permanent business address (if any), telephone number, email address, driver's license number, a current full-face photograph of vendor, a current full-face photograph of each of vendor's employees, proof of identity for each vendor and/or employee and proof that any other required permits or authorizations have been obtained. The county clerk or NDOT may require additional information to confirm the eligibility of the applicant for the permit.

b. The application shall also state a brief description of the nature and character of the food, beverages, goods, or services to be sold and shall be accompanied by a photograph of the vendor's fully assembled stand(s).

c. If the vendor is employed by or is an agent of another, the application shall state the name and business address of the principal or hiring person, firm, association, organization, company, or corporation.

d. Vendors with multiple stands, displays, carts, wagons, or any other means by which to offer goods or services to the public must procure a permit for each space occupied.

e. Health permit. Any vendor engaged in the sale of food, beverages or substances must, in addition to the above requirements, comply with the following:

i. Vendors of food, beverages and substances (if applicable) shall be required to obtain and maintain a health permit from the metropolitan public health department ("health department") in addition to the general vending permit. Upon application for the general vending permit, vendors of food and beverages shall have their applications forwarded to the health department for approval and shall submit their equipment for inspection.

ii. Upon approval by the health department (if applicable), the food, beverage, or substance vendor shall be subject to inspection by the health department officials as provided for by law at periodic intervals.

f. Insurance.

The application must include a provision indemnifying and holding harmless the metropolitan government from any and all claims arising out of the vendor's operation. Applicants must provide, as part of the application, a copy of a certificate of liability insurance with a minimum coverage of one million dollars covering the annual permitting period. If the vendor does not maintain this insurance coverage throughout the permit period, the permit shall be automatically revoked upon the termination of such insurance

policy. The policy must name the metropolitan government as additionally insured. The certificate must accompany the application.

g. Any intentional misrepresentation on the application by a vendor shall constitute grounds for denial, probation, suspension, or revocation of a permit. The applicant will not be allowed to reapply for an application for a twelve-month period.

4. Fee.

a. At the time of application, a vendor shall pay an annual permit fee as established by the commission. This fee will authorize the location of one stand. If a vendor wishes to have more than one stand, they must pay an annual permit fee for each stand. There will be an additional fee for each vendor identification badge (or "I.D."). This shall not include any other applicable fees.

5. Application Processing.

a. Upon receipt of an application, the county clerk or NDOT shall:

i. Ensure the application is complete. Incomplete applications shall be denied and returned to the applicant.

ii. Ensure that all fees have been properly paid and that the appropriate certificate of insurance has been provided. Applications for which all applicable fees have not been paid or which do not contain the appropriate certificate of insurance shall be denied.

iii. Determine whether the applicant has been found to be non-compliant with a provision of this section during the six month period preceding the application. If the applicant has been found to have committed one or more violations of this section during the preceding six-months, the application shall be denied, whether the application is for a new permit or a renewal.

iv. Ensure that vendors offering foods, beverages, or substances have obtained all necessary licenses, permits, and/or inspections in accordance with subsection (B)(3)(e) of this section. If the required permits, licenses and/or inspections have not been obtained, the application shall be denied.

v. Take reasonable steps to verify the truthfulness of the information provided on the application. Applications found to contain false information shall be denied.

b. If the application meets the requirements specified in subsection (B)(5)(a) of this section, the county clerk or NDOT shall issue the permit and I.D. badges for the permittee and any employees identified in the application. A permit holder may apply for additional I.D. badges if needed. The I.D. badge shall include a current full-face photograph of the employee, employee name and the permit number.

c. The county clerk or NDOT will notify the vendor of the decision to issue or deny the permit and, if denied, the reason for denial. The county clerk or NDOT will provide the notification as soon as is practicable, but in no case shall notification occur later than thirty days after the filing of a properly completed application. With regard to renewal applications, an oral notification of the denial by the county clerk's office shall suffice for this purpose. The county clerk shall also notify staff of the traffic and parking commission of all such denials. A subsequent written notification shall be sent by traffic and parking commission staff to advise the applicant of their right to appeal pursuant to the terms of subsection C.3.a., below.

d. Granted permits shall be valid for one year after issuance (so long as all requirements are met, and no disciplinary action is taken) and shall be renewable upon expiration in each subsequent year so long as the vendor remains in good standing and has been found to have committed no more than three violations of this section in the previous twelve-month period. In the event that a vendor is denied a permit, either upon application or at renewal, the vendor shall have an opportunity to appeal the denial as described in subsection C.4. of this section.

6. Restrictions.

a. The granting of a permit confers a privilege, not a franchise or license. A permit does not guarantee a particular space or that any space will be available.

b. The sale of goods or services by street vendors is limited to the DTC and CF zoned districts. Provided, however, that no such sales may occur in the area (i) between Union Street and Korean Veterans Boulevard, spanning from the Cumberland River to 8th Avenue, or (ii) Symphony Place between Third Avenue South and Fourth Avenue South, or (iii) the John Seigenthaler Pedestrian Street Bridge. Additionally, vending is not allowed to occur on the portion of the street designed for vehicular traffic, excluding those permitted for a special event. These "No Vending" areas may be created or enlarged by the commission upon reasonable public notice and specific notice to current permit holders. Notwithstanding the above and to the extent consistent with public safety, the traffic and parking commission has the authority to establish a pilot vending program within any area previously described in section B.6.b., above as "No Vending" or otherwise.

c. Nothing herein shall exempt any vendor from the provisions of Section 12.52.130 regarding sales to persons in vehicles from a street or sidewalk.

d. Each street vendor must prominently display the permit, in addition to any business tax license the vendor may be required to possess, and if applicable, the health permit must also be prominently displayed. I.D. badges issued by the county clerk or NDOT are to be in the possession of vendors and their employees at all times and are not transferable. Vending operations in violation

of this provision shall be removed upon order of the metropolitan police department or NDOT until the deficiency is corrected.

e. Vending at, abutting or in front of the Nashville Convention Center, the Municipal Auditorium, the Nashville Arena or any other facility identified in Chapter 6.32 of the Metropolitan Code shall be in compliance with the more particular regulations set forth in Chapter 6.32.

f. Street vendors operating on the public right-of-way agree to indemnify and hold harmless the metropolitan government from any cause of action arising from the vendor's operation.

g. No vendor or owner of any wheeled and mobile vehicles, temporary stands, signs or displays or racks shall be entitled to compensation by virtue of being required to move to protect the public safety, allow access to utilities, or allow the free flow of pedestrian traffic, regardless of the length of time incurred thereby.

h. Permits are nontransferable.

i. The traffic and parking commission shall have the authority to publish and enforce such other regulations related to vending, street performers and other temporary sidewalk encroachments as shall be necessary to effectuate this section and to ensure the free flow of pedestrian and vehicular traffic and to ensure the safety of the public, including designating appropriate clearances around other features of the public right-of-way, such as intersections, disabled parking spaces, fire hydrants, parking meters, loading zones, bus stops, building entrances and the like. In so doing, the commission may adopt a map or maps showing locations where vending is prohibited and/or where it is permitted.

j. Vending permits issued under this section shall be suspended during any special event as defined in subsection (B)(2)(h) of this section for which the metropolitan government has given its official written permission to close or otherwise alter the normal, everyday use of any public roadway, street or sidewalk, and vending shall be prohibited during the limited period of time specified for the special event and within the area covered by the special event permit except by those vending with the express written permission of the event permit holder.

k. A vendor shall promptly comply with an order of an officer of the metropolitan police department, the Nashville Fire Department, or employee of NDOT to temporarily move to another location when necessary to accommodate unusually heavy pedestrian or vehicular traffic, any obstructions in the public space, an accident, fire or other emergency situations, a parade, demonstration or other such event or occurrence at or near such location.

C. Probation, Suspension, Revocation or Denial of Permits.

1. Any permit issued under this section may be placed on probation, suspended, or revoked by the commission, or its staff, for any of the following reasons:

a. Fraud or misrepresentation in the application for the permit; or,

b. Fraud or misrepresentation while conducting the business of vending; or,

c. Conducting business contrary to the conditions of the permit and/or these regulations; or,

d. Conducting business in such a manner as to create a public nuisance or to constitute a danger to the public health, safety, or welfare; or,

e. Cancellation of health department authorization for food or beverage vendors, as applicable.

2. The commission, or its staff, shall consider the following factors in determining whether a permit should be placed on probation, suspended, or revoked:

a. The number of citations for violation of this section previously received by the vendor; and

b. The number of previous probations, suspensions, and/or revocations imposed upon the vendor; and

c. The number of occasions for which the vendor's permit was subject to probation, suspension, or revocation but no action was taken; and

d. The seriousness of the violation or misrepresentation and the danger to the health and/or safety of the public presented by the vendor's misrepresentation, noncompliance and/or misconduct; and

e. Whether or not the condition subjecting the vendor to probation, suspension or revocation is of a nature that has been or can be corrected.

3. Written Notice of Probation, Suspension, Revocation or Denial:

a. Upon probation, suspension, revocation, or denial of the issuance of a permit, the commission, or its staff, shall deliver written notice to the permit holder or applicant stating the action taken and the reasons supporting such action, and the right to reconsideration of that decision as set forth below.

b. The written notice shall be delivered to the permit holder's or applicant's place of business, as described on the application, or last known address. Placement of such notice in the U.S. mail shall constitute delivery.

c. A permit which has been placed on probation shall remain on probation until such time as the condition causing the probation has been corrected to the satisfaction of the commission, or for a period of time determined by the commission.

d. A permit which has been suspended shall remain suspended until such time as the condition causing the suspension has been corrected to the satisfaction of the commission.

e. A permit which has been revoked shall remain revoked for one year following the date of revocation. No vendor whose permit has been suspended or revoked may apply for a new permit during the period of suspension or revocation.

4. Any permit holder or applicant whose permit is placed on probation, suspended, or revoked, or whose application for a permit is denied may within fifteen days of the date of that action notify the commission that the permit holder or applicant desires reconsideration of that decision. A hearing of the request shall be scheduled for the next regular meeting of the commission. The probation, suspension, or revocation shall remain in effect pending the hearing. At the hearing, the permit holder or applicant will be afforded an opportunity to be heard and to present facts and witnesses on his or her own behalf. The permit holder or applicant shall not be entitled to an adversarial hearing or to examine any witness except those the permit holder may present on his or her own behalf.

D. Renewals. Permits may be renewed, provided an application for renewal of the permit and the required fee are received by the county clerk or NDOT no later than the date of expiration of the existing permit and provided that the vendor has no more than three violations of this regulation within any twelve-month period. A vendor whose permit has been revoked may submit an application upon the expiration of the revocation. Applications received after that date shall be processed as new applications. The commission or its staff shall review each renewal application to ensure that the vendor is in full compliance with the provisions of this regulation. If the commission determines that the vendor has complied with the above requirements, the commission will renew the permit for one year.

E. Penalties.

1. Any person who offers merchandise for sale in violation of this regulation or who violates any other provision of this regulation shall be penalized as is provided for in Section 1.01.030 of this Code, or, to the extent permitted by law, a fine of up to $50.00. These penalties may be assessed by the commission and will be deposited into the general fund of the metropolitan government. Commission and/or Nashville Department of Transportation staff are authorized to issue citations for these violations, and charged with doing so, as well as peace officers.

2. The permit of any person who offers merchandise for sale in violation of the regulation or who violates any other provision of this regulation may be placed on probation or suspended. The permit of any person who seriously endangers the health and/or safety of the public by misrepresentation or violation of this regulation, or who is convicted of three or more violations of this regulation during any twelve-month period, shall be revoked. (Ord. BL2024-514 §§ 1—3, 2024; Amdt. 1 to Ord. BL2023-70 § 1, 2023; Ord. BL2023-70 § 1, 2023; Ord. BL2023-1647 § 2, 2023; Ord. BL2018-1295 § 1, 2018; Amdt. 1 to Ord. BL2012-334 §§ 1, 2, 2013; Ord. BL2012-334 § 1, 2013; Ord. BL2009-587 § 3, 2010; Ord. BL2003-38 § 1, 2004; Ord. 99-1575 § 1, 1999; Amdts. 1 and 2 with Ord. 98-1191, § 1 1998)

13.08.050 Obstructing visibility at intersections, driveways, or rights-of-way.

No person shall place or cause to be placed or maintained, either temporarily or permanently, any sign, card, poster, pennant, banner, bush, tree, hedge, or other obstruction:

A. On private property within twenty-five feet of any street intersection so as to interfere with traffic visibility at the intersection.

B. On private property in such a manner as to interfere with traffic visibility of any driver using an authorized driveway or alley.

C. Within the right-of-way of any street within the area of the metropolitan government. This restriction shall not apply to any bush, tree, hedge, or other landscaping amenity placed or maintained by any department of the metropolitan government or by any organization permitted under Section 13.08.030 hereof. (Ord. BL2024-292 § 1, 2024; prior code § 38-1-4)

13.08.060 Street cleaning—Restricted hours of operation—Exceptions.

A. No person shall operate any mechanical device to clean or sweep streets or other paved areas within three hundred feet of any building or structure used for residential purposes between the hours of eleven p.m. and seven a.m.

B. Provided however, the prohibition of such activity shall not be applicable:

1. To the DTC and CF zone districts of metropolitan government; and

2. When specifically permitted by the director of the department of public works. (Ord. BL2009-587 § 3, 2010; prior code § 38-1-4.2)

13.08.070 Transport of hazardous materials on public streets prohibited—Penalty.

A. For the purpose of this section, the following terms shall be defined as follows:

"Hazardous materials" means any radioactive material in a solid or liquid state which, if exposed, would endanger the health or safety of humans or animals. Radioactive material used for medical purposes shall not be included in this definition. Further, radioactive materials used in industrial instrumentations in quantities as defined as Type A in Title 49 CFR, Paragraph 173.389, are not included in the definition of hazardous materials. Further, radioactive materials used for educational or scientific research in an amount not to exceed one hundred curies shall not be included in this definition.

"Public street or roads" means any dedicated and accepted street, alley or thoroughfare, both improved and unimproved, exclusive of state and federal highways.

"Vehicle" means any truck, automobile, motorcycle or trailer used to transport hazardous materials.

B. It is unlawful for any vehicle transporting hazardous materials to drive upon any street, alley or thoroughfare within the area of metropolitan government.

C. Violation of this section shall be punishable by a fine of fifty dollars. (Prior code § 38-1-4.1)

13.08.080 Deployment of surveillance or electronic data gathering devices onto public rights-of-way requires metropolitan council approval.

A. For the purposes of this section, the following terms shall be defined as follows:

(1) "Public right-of-way" shall mean any street, avenue, boulevard, highway, sidewalk, alley or public outdoor space which is within the Metropolitan Government of Nashville and Davidson County besides highways that comprise the Dwight D. Eisenhower National System of Interstate and Defense Highways.

(2) "Surveillance technology" shall mean any electronic surveillance device, hardware, or software that is capable of collecting, capturing, recording, retaining, processing, intercepting, analyzing, monitoring, or sharing audio, visual, digital, location, thermal, biometric, or similar information or communications specifically associated with, or capable of being associated with, any specific individual or group; or any system, device, or vehicle that is equipped with an electronic surveillance device, hardware, or software.

(a) "Surveillance technology" includes, but is not limited to: (i) international mobile subscriber identity (IMSI) catchers and other cell site simulators; (ii) automatic license plate readers; (iii) closed-circuit television cameras; (iv) biometric surveillance technology, including facial, voice, iris, and gait-recognition software and databases; (v) mobile DNA capture technology; (vi) x-ray vans; (vii) video and audio monitoring and/or recording technology, such as surveillance cameras and wide-angle cameras; (viii) surveillance enabled or capable lightbulbs or light fixtures; (ix) tools, including software and hardware, used to gain unauthorized access to a computer, computer service, or computer network; (x) social media monitoring software; (xi) through-the-wall radar or similar imaging technology; (xii) passive scanners of radio networks; (xiii) long-range Bluetooth and other wireless-scanning devices; and (xiv) radio-frequency I.D. (RFID) scanners. The enumeration of surveillance technology examples in this subsection shall not be interpreted as an endorsement or approval of their use.

(b) "Surveillance technology" does not include the following devices or hardware, unless they have been equipped with, or are modified to become or include, a surveillance technology as defined in Section 13.08.080(A)(2)(a): (i) routine office hardware, such as televisions, computers and printers, that is in widespread public use and will not be used for any surveillance or law enforcement functions; (ii) Parking Ticket Devices (PTDs); (iii) manually operated non-wearable handheld digital cameras, audio recorders, and video recorders that are not designed to be used surreptitiously and whose functionality is limited to manually capturing and manually downloading video and/or audio recordings; (iv) surveillance devices that cannot record or transmit audio or video or be remotely accessed, such as image stabilizing binoculars or night vision goggles; (v) manually operated technological devices used primarily for internal communications among metropolitan government entities and are not designed to surreptitiously collect surveillance data, such as radios and email systems; (vi) wayfinding technological devices which enable the user to determine global positioning, location within a built environment, or orientation; and (vii) metropolitan government wireless local area networking and metropolitan government databases that do not contain any data or other information collected, captured, recorded, retained, processed, intercepted, or analyzed by surveillance technology.

(c) "Surveillance technology" does not include technology or equipment that collects data in anonymized form or that immediately deletes or destroys non-anonymized collected data.

(3) "Install" or "Installing" shall mean attaching to an existing building, pole, overpass, roadway, sidewalk, natural area, or other structure in a manner that facilitates

the permanent or semi-permanent presence of the applicable device. "Install" or "Installing" shall not mean operating a mobile or portable device intended to be present for a time of limited and discernable length.

(4) "Personally identifiable information" or "PII" shall mean any representation of information that permits the identity of an individual to whom the information applies to be reasonably inferred by either direct or indirect means. Further, PII is defined as information: (i) that directly identifies an individual (e.g., name, address, social security number or other identifying number or code, telephone number, email address, etc.) or (ii) by which any governmental department or agency intends to identify specific individuals in conjunction with other data elements, i.e., indirect identification. (These data elements may include a combination of gender, race, birth date, and other descriptors). Additionally, information permitting the physical or online contacting of a specific individual is the same as personally identifiable information. This definition includes information that is maintained in either paper, electronic or other media.

(5) "Allowed PII" shall mean the image of a license plate, the time and location stamp of an image of a license plate, and the make, model, and color of the vehicle associated with an image of a license plate.

(6) "Common area" means any shared space within a building, property, development, or other outdoor space that is accessible or is reasonably intended to be accessible to the general public or a defined group of individuals, whether on a permanent or occasional basis.

(7) "Community safety camera network" shall mean the collection of cameras providing access to live or recorded views that have been integrated within the Metro Nashville Police Department's video management system.

(8) "Community safety center" ("CSC") shall mean the physical location, located within a Metro Nashville Police Department-operated building or remote command center, where community safety camera network cameras are accessed.

(9) "Donor camera" shall mean any camera owned and maintained by a private entity where the private entity voluntarily elects to participate in the community safety camera network by providing access to common area-facing camera feeds.

(10) "Public safety camera" means a camera owned, installed, and maintained by a governmental entity, including the metropolitan government and any department or agency thereof, which is accessible by the Metropolitan Nashville Police Department ("MNPD").

(11) "Public health and safety emergency" means any event or situation that poses a significant threat to the safety and well-being of the general public that would typically require a response by Metro emergency services.

(12) "Residential use" means any parcel that includes a single-family, two-family, or multi-family residence.

B. "License plate scanner" shall mean one or more fixed high-speed cameras combined with computer algorithms to convert images of license plates into computer-readable data.

C. Beginning July 1, 2017, approval by the metropolitan council, by a resolution adopted after a public hearing, shall be required prior to any of the following actions by the Metropolitan Government of Nashville or Davidson County, the departments, boards or commissions thereof, or any individual or entity acting upon its behalf:

(1) Installing surveillance technology onto or within the public right-of-way, unless:

(a) the same type of surveillance technology is already in use by the entity; and

(b) the number of new devices does not represent more than a fifty percent increase in the total number of devices of the same type already in use by the department, board, or commission seeking installation, as compared to the number of devices in use at the time of this ordinance's implementation or at the time of the last such approval by the metropolitan council, whichever is more recent.

(2) Entering into an agreement with a private entity to acquire, share or otherwise use surveillance technology or the information it provides if such agreement includes exchange of any monetary or any other form of consideration from any source, including the assessment of any additional fees, interest, or surcharges on unpaid fines or debts absent approval by the metropolitan council;

(3) Accepting state or federal funds or in-kind or other donations for surveillance technology;

(4) Acquiring new surveillance technology, including but not limited to procuring such technology without the exchange of monies or consideration;

(5) Entering into an intergovernmental agreement regarding the installation of surveillance technology or use of the information it provides within the Dwight D. Eisenhower National System of Interstate and Defense Highways; or

(6) Acquiring or entering into an agreement to acquire surveillance footage or data captured by technology owned by a person or business without the direct consent of that person or business absent a judicial warrant or order to the contrary.

D. The approval by the metropolitan council for any action set forth in subsection 13.08.080(C) above shall be granted only upon the determination that the benefits to the citizens and residents of Nashville and Davidson County outweigh the costs; that the proposal will safeguard civil liberties and civil rights; and that, in the judgment of the metropolitan council, no alternative with a lesser economic cost or impact upon civil rights or civil liberties would be as effective.

E. This section shall not apply to acquisition or use of surveillance technology by or on behalf of law enforcement that is used on a temporary basis for the purpose of a criminal investigation supported by reasonable suspicion, or pursuant to a lawfully issued search warrant, or under exigent circumstances as defined in case law.

F. This section shall not apply to surveillance technology installed for the purpose of securing a building or facility from unlawful entry or unauthorized access.

G. Except as provided in subsection I. of this section, any department of the metropolitan government, either directly or through contractors acting at the department's direction, wishing to acquire or enter into an agreement to acquire license plate scanner (LPR) technology and/or install or operate them onto or within the public rights-of-way, shall comply with the following requirements and restrictions:

1. A usage and privacy policy shall be implemented in order to ensure that the collection, use, maintenance, sharing, and dissemination of LPR information is consistent with respect for individuals' privacy and civil liberties. The usage and privacy policy shall be posted on the department's website, and shall include the following:

(a) i. The authorized purposes for using the LPR system and collecting LPR information, which shall be limited to the following:

(1) investigating and prosecuting felony offenses and criminal offenses associated with violent crimes including gun violence, homicide, and assault; and reckless driving including illegal drag racing activity at speeds in excess of seventy miles per hour;

(2) identification and recovery of stolen vehicles and stolen license plates;

(3) detecting civil traffic or parking offenses;

(4) operating a smart parking or curb management program; and

(5) assisting in missing persons cases including Amber and Silver Alerts.

ii. The use of an LPR system and collection of LPR information is not authorized and shall not be used for any purpose other than those listed in this section. This prohibition includes, but is not limited to the use of LPR for the following:

(1) the general surveillance of any individual;

(2) the identification of a vehicle for the purposes of repossession of the vehicle;

(3) the determination of whether a vehicle's license plate is expired;

(4) the determination of whether a motorist has a valid driver's license; or

(5) the determination of whether a motorist is insured.

(6) to assist any federal official in the identification, apprehension, detention, or removal of any person in connection with the immigration laws of the United States, except to the extent the use of the LPR system or LPR information is sought to verify or report the immigration status of any person.

(7) the enforcement of any law prohibiting, limiting, or criminalizing reproductive healthcare, including an abortion, or prohibiting, limiting, or criminalizing interstate travel for the purpose of obtaining reproductive healthcare, including an abortion.

iii. An LPR system authorized under this section shall not be capable of facial recognition.

iv. Law Enforcement Agencies, the Parking Enforcement Patrol, NDOT, and their contractors must have reasonable suspicion that a felony offense, or a traffic or parking offenses, has occurred before examining collected license plate reader data that was collected more than one hour prior to the examination. Further, Law Enforcement Officers shall not examine license plate reader data that was collected more than one hour prior to the examination in order to generate reasonable suspicion.

v. Whenever a license plate reader alerts on a plate, law enforcement, before taking any action, must confirm visually that a plate matches the number and state identified in the alert, that the alert is still active by calling dispatch, whether the alert pertains to the registrant of the car and not the car itself, and that the license plate is on the list for one of the authorized purposes listed in this section. Once confirmed, a query shall be initiated in the National Crime Information Center (NCIC) database by authorized individuals.

(b) A description of the employees or contractors who are authorized to use or access the LPR system or to collect LPR information.

(c) A description of the steps taken to restrict the information obtained through the LPR system to that which is strictly necessary to implement the purposes in

subsection G.1(a) of this section and limited to the contents of only the license plate and, to the extent possible, excluding identifying information of the driver and passengers.

(d) A description of how the LPR system will be monitored to ensure the security of the information obtained.

(e) The purposes of, process for, and restrictions on the sharing of LPR information to other persons, which must be in accordance with the purposes identified in subsection G.1(a) of this section.

(f) A description of the measures used to ensure the accuracy of LPR information and to correct data errors.

(g) The length of time LPR information will be retained, limited to the terms outlined in subsection G.4 of this section.

2. The installation and maintenance of LPR hardware and software, as well as LPR data access, retention, and security, shall be managed by an LPR custodian ("custodian") designated by the department using the LPR system, who will assign personnel under their command to administer the day to day operation of the LPR system as defined below. The custodian's name shall be provided on the department's website. The custodian shall be the administrator of the LPR system and shall be responsible for developing guidelines and procedures regarding the department's use of its LPR system, including, but not limited to:

(a) Establishing and maintaining reasonable security procedures and practices, including operational, administrative, technical, and physical safeguards, to protect LPR information from unauthorized access, destruction, use, modification, or disclosure;

(b) Maintaining a list of the name and job title of all users who are authorized to use or access the department's LPR system;

(c) Developing training requirements for and ensuring training of authorized users on the operations of, and usage and privacy policy for the department's LPR system;

(d) Developing procedures and a regular timetable for conducting audits of LPR system usage, including audits of user searches;

(e) Developing procedures for, and ensuring the proper retention and destruction of, the agency's LPR data;

(f) Ensuring that this policy and its related procedures are posted conspicuously on the department's public website; and

(g) Managing the relationship with the LPR provider, which shall include ensuring that:

i. The provider meets all contractual obligations;

ii. The system is maintained as per Service Level Agreements;

iii. Log retention is adequate; and

iv. Data ownership is clearly understood.

3. Access and use of the department's LPR system is strictly restricted to the authorized users, as outlined below:

(a) Authorized users must receive appropriate supervisory approval, as determined by the custodian, prior to receiving LPR system access.

(b) Access shall only be approved for designated personnel whose roles require them to use the LPR system, and LPR system access shall be further limited to those tasks within the employee's job responsibilities. Access shall be limited to no more than ten authorized users per department.

(c) Personnel authorized to use the department's LPR system as defined in subsection G.3.(b) of this section shall be specifically trained in the system and the usage and privacy policy prior to receiving account access. This training shall include, but not be limited to:

i. Applicable local, state, and federal laws;

ii. Applicable policies, including the usage and privacy policy;

iii. Functionality of the equipment;

iv. Authorized and prohibited uses;

v. Accessing data;

vi. Safeguarding password information and data;

vii. Data sharing policies and procedures; and

viii. Reporting breaches, errors, and other issues.

(d) Authorized user accounts which are inactive for a period of nine months will be disabled automatically. Authorized users with disabled accounts must be retrained in the LPR system, usage, and privacy policies prior to having their accounts reinstated.

(e) Users found to have used the LPR system without authorization, with improper credentials, or in a manner not authorized by these policies shall have their access immediately revoked and may face disciplinary action in accordance with applicable civil service policies, up to and including termination.

(f) To the extent consistent with state or federal law, to ensure compliance with the provisions of this section or to investigate complaints of misuse of an LPR or LPRs, the district attorney general, or a designee, or the public defender, or a designee, or the executive director of the community oversight board, or a designee, may examine and audit any LPR, any file used to store LPR data, and any records pertaining to the use of LPRs. If the district attorney general, the public defender, or the executive director of the community oversight board believes that an LPR or LPRs have been used in violation of this section, any of them may send a letter to

the metro council requesting suspension of the use of an LPR or LPRs for the purposes of investigation, to prevent ongoing violations, or to deter future violations. The metro council may grant such a request by resolution. Nothing in this section shall be construed as limiting the authority of the district attorney general to prosecute any crime involving LPR. This includes, but is not limited to, tampering with evidence, which is a class C felony punishable under Tennessee law with a term of imprisonment of three to fifteen years and a fine not to exceed ten thousand dollars.

4. (a) LPR data, including but not limited to license plate number, vehicle description, location and date/time stamp shall not be retained for more than ten days, unless it is evidence in a criminal offense or civil traffic or parking offense, subject to a properly issued warrant, subpoena, public records request or court order, or where the department has been instructed to preserve such data by the metropolitan department of law in relation to pending litigation or anticipated litigation.

(b) Any data unrelated to an ongoing investigation, or pending or anticipated litigation shall be automatically deleted after ten days.

(c) Users who wish to preserve LPR data for longer than ten days shall make a written request to their supervisor including the investigation number and purpose for preservation and, upon approval, such LPR data will be preserved along with a note in the record stating the reason for preservation and related investigation number.

(d) LPR data retained by the metropolitan government shall not include any personally identifiable information, except for Allowed PII.

(e) To the extent permitted by state law, the metropolitan government shall not sell LPR data for any purpose and shall not share any LPR data, except as provided in subsection G.6.

5. The LPR custodian shall perform an audit of the LPR system and its access history on a regular basis, not less than one time per year. The department shall maintain an audit trail of access to the system for a period of not less than three years, which will include the following:

(a) The date and time the information is accessed.

(b) The license plate number or other data elements used to query the LPR system, if such data elements are not deleted per subsection G.4 of this section. Data exempt from deletion under subsection G.4., such as data that will be used as evidence in a felony offense or traffic or parking offense, must be preserved for the audit trail pursuant to this subsection.

(c) The username of the person who accessed the information.

(d) The purpose for accessing the information.

(e) To the extent consistent with state or federal law, access to review the Metropolitan Nashville Police Department audit trail including any audit work papers shall be provided to the district attorney, public defender, and the executive director of the community oversight board, or their respective designees.

6. To the extent consistent with state or federal law, the department's stored LPR data may only be shared with other law enforcement agencies using the following procedures:

(a) The agency making the request for the LPR data shall submit in writing:

i. The name of the agency;

ii. The name and title of the person requesting the information;

iii. The intended purpose of obtaining the information; and

iv. An agreement to adhere to the applicable provisions of this usage and privacy policy.

(b) The request shall be reviewed and approved by the custodian before the requested access is granted.

(c) If the requested search generates results, the custodian or his or her designee must verify that the results are relevant to the request made prior to sharing the LPR data.

(d) The department shall not share any data with any agency that uses that data in a manner broader than allowed by this subsection G.6. Data may only be shared for the purposes outlined in subsection G.1(a).

(e) Records of all approved requests, including a record of which account was used to provide the search results, must be maintained for a period not less than three years.

7. To protect against racial and ethnic bias in the use of LPRs, any time a motor vehicle is stopped based on data analysis performed by an LPR:

(a) The law enforcement officer who effectuated the stop shall record and provide to their precinct for record keeping and reporting purposes:

i. The date, time, and precise location of the stop;

ii. Any investigative or enforcement actions that were taken subsequent to the stop, including without limitation: an arrest; a search of a vehicle, driver, or passenger; the issuance of a new ticket, fine, or fee; or the enforcement of an existing ticket, fine, or fee;

iii. The self identified race(s) and ethnicities of the driver of the stopped motor vehicle, if voluntarily provided by the driver following the law enforcement officer's request.

(b) The race and ethnicity identification categories provided to the driver for selection by the law enforcement officer shall be the same as those under present use by the United States Office of Management and Budget (OMB).

(c) No later than March 1 of each year, the Metropolitan Nashville Police Department (MNPD) shall report to the metropolitan council, and shall make publicly available upon the MNPD website, all of the data collected pursuant to this subsection Section G.7(a), by precinct, from the previous calendar year. The reported data shall include no other personally identifiable information.

(d) In addition to the reporting requirement in Subsection G.7(c), during the six month pilot program referenced in subsection G.14, the MNPD shall report to the metropolitan council the information required by this subsection G.7(d) every two months. If a resolution is approved to fully implement the MNPD's use of LPR technology, the MNPD shall report such information to the metropolitan council every three months. Each report submitted by the MNPD shall contain the following information, compiled since the end date of its most recent report:

i. The number of LPRs in use.

ii. The number of matches made by the LPR, including number of matches read correctly and any misread.

iii. The number of matches that identified vehicles and individuals sought by law enforcement and that resulted in stops of vehicles or individuals.

iv. The number of matches that resulted in searches of vehicles and individuals, releases, arrests, or other outcomes.

v. Other information requested by the metropolitan council by resolution.

8. Failure of an employee to comply with this subsection G shall be grounds for disciplinary action in accordance with applicable civil service policies, up to and including termination.

9. LPR data shall only be disclosed in accordance with state and federal law.

10. LPR data obtained from a privately owned or operated LPR system may be used for the purposes authorized in subsection G.1., provided the data is voluntarily provided by the owners or operators of said LPR systems. The custodian shall develop policies and procedures for requesting, protecting, and retaining this data that are consistent with the intent of subsections G.2., G.3., and G.4.

11. Any device or service necessary to effectuate the provisions of this subsection G shall be procured pursuant to the provisions of Title 4 of the Metropolitan Code of Laws, the Procurement Code. During the six month pilot program referenced in subsection G.14, the metropolitan government shall not accept a donation of any LPR, LPR device, or LPR service or any donation of funds for the purchase of any LPR, LPR device, or LPR service from any private source. This shall not limit the metropolitan government's ability to accept a grant from a governmental entity. After the conclusion of the pilot program period, and upon the full implementation of the use of LPR, a donation of any LPR, LPR device, or LPR service or any donation of funds for the purchase of any LPR, LPR device, or LPR service shall be subject to the approval of the metropolitan council by resolution, regardless of the value of the donation.

12. An LPR technology deployment policy shall be developed and implemented by the MNPD to help prevent misuse of LPR technology to track and unfairly target vulnerable communities. Placement of fixed LPR technology in the public right-of-way shall be limited to major and collector streets as defined in the Nashville Next Major and Collector Street Plan, and the location of LPR devices shall be distributed equitably across the north, south, east, and west quadrants of the county. Signage shall be placed by any fixed LPR technology to give notice to the public of the use of such technology at a given location. The signage shall be clearly visible and legible to the motoring public and shall state "License Plate Reader Technology In Use". Fixed LPR technology and related notice signage shall be removed from the public right-of-way at the conclusion of a six-month pilot program referenced in subsection G.14. Subject to the requirements in subsection C and subsection G, fixed LPR technology may be installed in the public right-of-way. Within fifteen days following the termination of a vendor contract or agreement to lease, license, maintain, monitor, or otherwise contract for the right to use, service, or locate LPR technology in the right-of-way, the department shall cause all fixed LPR technology subject to such contracts to be removed, along with related notice signage, from the public right-of-way.

13. A data verification policy shall be developed and implemented by MNPD to help prevent erroneous and potentially dangerous stops based upon incorrect or outdated information. The policy shall require independent verification of the information yielded from a hot list and real time updating of hot list data, as well as a comparison of the accuracy of the hot list data with the accuracy of the LPR images. Hot lists shall be transferred daily and be capable of updating by an operator/officer in the field. The LPR system, both for fixed and mobile LPR units, shall function in such a manner so as to notify an officer when a license plate on the hot list is observed in real time. Historical LPR data shall be

searched to determine the date and time a license plate number contained on a hot list passed a certain camera. For purposes of this subsection G., "hot list" means the list of license plate numbers law enforcement agencies have identified as being relevant for the investigation and/or prosecution of a criminal offense. Notwithstanding anything to the contrary in this Section, the metropolitan government shall not in any way use, upload, or refer to a hot list that is related to federal immigration enforcement including without limitation any hot list provided or generated by the U.S. Immigration and Customs Enforcement or any hot list that includes data provided or generated by the U.S. Immigration and Customs Enforcement.

14. Prior to the full implementation of a department's LPR system, there shall be a six month pilot program beginning the first day that the LPR system is operational and in use by the department to determine whether the continued use of LPR technology is appropriate. At least two weeks prior to the conclusion of the pilot program period, the department shall submit a report to the council on the efficacy of the program, compliance with the provisions of this section, and any policies implemented in order to carry out the use of the LPR system. This report shall be posted on the department's website. At the end of the six month pilot program, the use of LPR technology by a department shall cease unless the metropolitan council approves the full implementation of the department's use of LPR technology upon adoption of a resolution.

H. Notwithstanding the foregoing, the provisions of this section shall not apply to the Nashville Electric Service, the Metropolitan Nashville Airport Authority, the Metropolitan Development and Housing Agency, and the Metropolitan Transit Authority. Notwithstanding the foregoing, the provisions of this section shall also not apply to the operation of a license plate scanner installed onto or within the public right-of-way that meets each of the following conditions:

a. The license plate scanner is used solely and exclusively for determining whether a vehicle is violating parking restrictions; and

b. A specific vehicle's license plate number shall be deleted within thirty minutes of its exit from a monitored parking space, unless that vehicle is suspected of violating parking restrictions for which enforcement action would be appropriate.

I. In addition to the provisions of subsection G. of this section, license plate scanner technology shall be allowed if all of the follow requirements are met:

a. The license plate scanner is used solely and exclusively in conjunction with a vehicle emissions sensor as part of an emissions inspection program authorized under local, state or federal law;

b. The data from the license plate scanner and vehicle emissions sensor is used solely and exclusively for purposes of determining compliance with vehicle emissions standards;

c. A determination by the vehicle emissions sensor that a vehicle identified by the license plate scanner is not in compliance with applicable emissions standards shall not lead to any penalty or punitive action against the registered vehicle owner;

d. No fewer than two such license plate scanners shall be in operation within Davidson County at any given time; and

e. Data that can be used to pair a specific vehicle's license plate number, VIN, or other unique identifier with a specific geographic location shall not be recorded.

J. The Metropolitan Department of Information Technology Services and/or the Nashville Department of Transportation and Multimodal Infrastructure may use technology/equipment for the sole and exclusive purpose of monitoring and managing traffic for non-law enforcement purposes. Such technology shall:

1. not save or store data that can be associated with any specific individual or group;

2. not include video that can be paused, rewound, or otherwise viewed in any manner other than real-time;

3. not be monitored by, used by, or acquired by law enforcement personnel for law enforcement purposes, including but not limited to the purposes listed in subsection (E), except for real-time emergency response to support public safety; and

4. be reviewed by the Metropolitan Department of Information Technology Services for data and network security concerns prior to implementation.

K. MNPD may enter into an agreement to participate in a community safety camera network that includes donor cameras, subject to all applicable ordinances. Such participation shall comply with the following additional requirements and restrictions:

1. Community Safety Camera Network Locations and Access

a. Public safety cameras shall not be installed in a location where there is a reasonable expectation of privacy. A map showing the locations of public safety cameras owned and operated by MNPD shall be posted on the MNPD website.

b. MNPD shall not have access to a donor camera which:

i. Views an area where there is a reasonable expectation of privacy;

ii. Focuses on an area not owned by the operator of the donor camera;

iii. Views an area other than a common area;

iv. Is installed upon the property of a residential use and views an area which includes the front door of a residence or the entryway thereto;

v. Is installed upon the property of a multifamily residential use and focuses on an area other than a parking lot, parking garage or other outdoor common area.

c. MNPD shall access a donor camera only:

i. In a manner accordant with the parameters set by the private entity who owns the donor camera; and

ii. Only for the purpose of responding to a public health and safety emergency or conducting an audit of the community safety camera network or a component thereof.

d. Cameras shall only be accessed from within the CSC.

e. MNPD shall not have access to live video from a donor camera if located upon the property of a solely residential use.

2. System Restrictions

a. MNPD shall not record the feed of any camera not owned and operated by MNPD. All non-evidentiary video footage shall be the property of the camera's owner.

b. The community safety camera network shall not be used to identify individuals, or the characteristics thereof, through the use of facial recognition technology. The community safety camera network shall not be used to identify individuals, or the characteristics thereof, through the use of artificial intelligence or machine learning-based solutions, excluding the use of such technologies to make an image more interpretable. The community safety camera network shall not utilize artificial intelligence, machine learning-based solutions, or any other artificial mechanism to capture conversations through automated lip reading.

c. The community safety camera network shall not be used to target, harass, and/or intimidate individuals or groups based solely on actual or perceived characteristics, included but not limited to race, color, religion, sex, age, national origin or ancestry, gender identity, sexual orientation, or disability.

d. In accordance with MNPD policy provisions regarding the duty to intervene, MNPD employees are required to intervene and stop any MNPD employee from committing an unlawful or improper act as it relates to this subsection K and report such violations.

e. In accordance with MNPD policy provisions regarding the duty to intervene, where video collected from the community safety camera network captures any MNPD employee utilizing excessive or unlawful force, such video shall be immediately preserved and provided to the MNPD office of professional accountability and the district attorney general.

f. MNPD shall not share video from donor cameras with any individual, group, or entity for a purpose not outlined in subsection K.1(c).

3. Policies Required

a. MNPD shall develop and publish on its website a policy addressing authorized access to and use of the community safety camera network which includes:

i. Criteria for designating personnel who may access the community safety camera network.

ii. Training standards for such personnel. Those standards shall, at a minimum, include applicable laws, policies, procedures, authorized and prohibited uses, and duty to intervene.

iii. Procedures for disciplinary action for failure to adhere to the policy.

b. MNPD shall develop and publish on its website a policy for retention of videos obtained through the community safety camera network which includes:

i. Acknowledgment that MNPD shall not set retention policies for donor camera video saved on systems belonging to private entities.

ii. Reiteration of existing MNPD policies for retention of video from cameras owned and operated by MNPD.

iii. Acknowledgment that video that has evidentiary value shall be collected in accordance with established MNPD procedures and legal requirements.

c. MNPD shall post a log of all changes to these policies which includes a clear indication of what language was added, removed, or replaced as well as the date of the change.

4. System Audits and Reporting

a. Each officer responsible for accessing donor cameras shall be required to document in writing:

i. The date, time, and circumstance of each instance of accessing a donor camera; and

ii. A narrative detailing the purpose for accessing the donor camera.

b. The commander of the CSC shall perform an audit of the community safety camera network on a regular basis, not less than one time per quarter. The department shall maintain an audit trail of access to donor cameras for a period of not less than three years, which will include the following:

i. The date and time that a donor camera is accessed.

ii. The username of the person who accessed the donor camera.

iii. The purpose for accessing the donor camera.

iv. The outcome of the incident which caused the accessing of a donor camera.

c. No later than September 1 of each year, MNPD shall report to the metropolitan council, and shall publish on the MNPD website, the following data from the previous fiscal year:

i. The number of donor cameras registered as part of the camera safety network.

ii. The number of incidents in which one or more donor cameras were accessed.

iii. Outcomes of incidents which caused the accessing of donor cameras.

d. Any violation of this ordinance or material violations of the community safety camera network access or use policies shall be reported to the mayor and metropolitan council within seven days of discovery.

e. The metropolitan government may, upon the authorization of the mayor or the metropolitan council, hire an independent firm to conduct an audit of the records created and kept under this section.

5. Contract Requirements

a. Any contract to effectuate the provisions of this subsection K shall be procured pursuant to the provisions of Title 4 of the Metropolitan Code of Laws, the Procurement Code.

b. Any such contract shall include a termination clause which immediately terminates the contract upon written notice after a finding by MNPD or metropolitan department of law, or a vote of the metropolitan council, that one or more of the following occurred:

i. A change in applicable law, including but not limited to federal or state statute, regulation, ordinance, executive order, or directive, that would permit the use of the community safety camera network in a manner not specifically authorized in the agreement approved by the metropolitan council and applicable ordinances and policies.

ii. The use of the community safety camera network in a manner that the culpable individual knew or should have known was not specifically authorized by the metropolitan council under the contract and applicable ordinances and policies in place on the date of execution.

6. A public hearing shall be required to be held at a metropolitan council meeting prior to passage of an ordinance amending this subsection K. (Amdts. A—D to Ord. BL2025-690 § 2, 2025; Ord. BL2025-690 §§ 1, 2, 2025; Ord. BL2023-71 § 1, 2023; Ord. BL2022-1470 § 1, 2022; Ord. BL2022-1385 § 1, 2022; Amdt. 1 to Ord. BL2022-1115 § 1, 2022; Ord. BL2022-1115 §§ 1, 2, 2022; Ord. BL2022-1116 §§ 1, 2, 2022; Ord. BL2022-1114 §§ 1, 2, 2022; Amdt. C to Ord. BL2021-961 § 1, 2022; Amdt. B to Ord. BL2021-961 § 1, 2022; Amdt. A to Ord. BL2021-961 § 1, 2022; Ord. BL2021-961 §§ 1, 2, 2022; Ord. BL2021-679 §§ 1, 2, 2021; Ord. BL2021-646 § 17, 2021; Ord. BL2020-457 § 1, 2020; Amdt. 2 to Ord. BL2017-646 § 1, 2017; Amdt. 1 to Ord. BL2017-646 § 1, 2017; Ord. BL2017-646 § 1, 2017)

13.08.090 Gravel runoff.

No gravel placed on private property, including as surfacing material for a driveway, shall be allowed to wash or encroach into the public rights-of-way. (Ord. BL2020-188 § 2, 2020)

13.08.100 Truck vending permit program established.

A. Notwithstanding all other provisions within the Metropolitan Code to the contrary, the Metropolitan Department of Transportation and Multimodal Infrastructure ("NDOT") is hereby authorized to administer and enforce a truck vending permit program to allow vendors to operate, park, and sell food, beverages, and other merchandise, from trucks or other motor vehicles, within the metropolitan government's public rights-of-way ("truck vending permit program").

B. Notwithstanding all other provisions within the Metropolitan Code to the contrary, the traffic and parking commission is hereby authorized to establish rules and regulations to govern the truck vending permit program.

C. Any party vending from a motor vehicle within the metropolitan government's public rights-of-way, who does not have in place a current truck vending permit from NDOT, shall be deemed to have committed a violation of the Metropolitan Code and shall be subject to all applicable penalties provided for violations of the Metropolitan Code.

D. This subsection shall not apply to truck vendors who operate outside of the public right-of-way. (Ord. BL2024-391 § 1, 2024)

Chapter 13.10

ACCEPTANCE OF PRIVATE ROADS

Sections:

13.10.010	**Criteria for accepting private roads.**
13.10.020	**Appropriation of public funds prior to road acceptance.**
13.10.030	**Findings by the metropolitan council prior to road acceptance.**

13.10.010 Criteria for accepting private roads.

From the effective date of the ordinance codified in this chapter, privately owned roads may be accepted by ordinance only if the director of the department of public works certifies that such roads satisfy the following criteria:

A. An adequate right-of-way, minimum width of fifteen meters (fifty feet), is properly dedicated and recorded by plat to the metropolitan government, free of all encumbrances;

B. A level roadway pavement course, constructed of at least one hundred fifty mm (six inches) of compacted, stone base and seven meters (twenty-two feet) in width, must be in place and in good condition;

C. Adequate drainage facilities in place to maintain safe vehicular travel conditions;

D. As-built plans certified as to location by a registered land surveyor and as to design and construction by a professional engineer must be submitted and approved by the department of public works prior to acceptance of the road;

E. The road must be a minimum of one hundred eighty-two meters (six hundred feet) in length;

F. The road must serve a minimum of six, and a maximum of twenty residences; and all such residences must be single-family homes or duplexes;

G. The road must meet design standards for "local rural roads" specified in the edition of the "Policy on Geometric Design of Highways and Streets" of the American Association of State Highway and Transportation Officials current as of the date of acceptance of the road by the metropolitan government;

H. The road must have one, and only one, terminus on an existing public road as of the date of acceptance;

I. The road must be in existence and its location must be on file in the office of the director of public works as of the effective date of the ordinance codified in this chapter;

J. Development of property adjacent to roads accepted pursuant to this section beyond the limits specified in subsection F of this section without the approval of the director of the department of public works is prohibited. Approval shall be contingent upon a finding by the director that such further development is consistent with the health, safety and welfare of the citizens of Davidson County and consistent with acceptable engineering standards of practice;

K. No public or private road may be connected to a road accepted pursuant to this chapter without the approval of the director of the department of public works. Approval shall be contingent upon a finding by the director that such connection is consistent with the health, safety and welfare of the citizens of Davidson County and consistent with acceptable engineering standards of practice. (Ord. 98-1120 § 1 (part), 1998)

13.10.020 Appropriation of public funds prior to road acceptance.

No private road may be accepted as a public road by the metropolitan government until funds adequate for its maintenance, and for placement of appropriate signage, shall have been appropriated. (Ord. 98-1120 § 1 (part), 1998)

13.10.030 Findings by the metropolitan council prior to road acceptance.

Satisfaction of the criteria herein established shall not create a right to have a private road accepted as a public road by the metropolitan government. Acceptance shall require an affirmative finding by the metropolitan council that (1) it is in the best interest of the metropolitan government to accept the road and (2) that the requirements of Section 13.10.010(A) through (K) of this chapter have been satisfied. The criteria set forth in Section 13.10.010 do not constitute a design standard for new roads and do not replace existing department of public works road standards. (Ord. 98-1120 § 1 (part), 1998)

Chapter 13.12

DRIVEWAYS

Sections:

13.12.010 Driveway defined.
13.12.020 Construction—Regulations.
13.12.030 Review of driveway application—Duty of chief engineer.
13.12.040 Duty of property owner.
13.12.050 Construction—Authorization required.
13.12.060 Authorization—Application.
13.12.070 Authorization—Expiration.
13.12.080 Applications—Appeals.
13.12.090 Construction costs—Owner responsibility.
13.12.100 Location.
13.12.110 Dimension and location requirements.
13.12.120 Sight distance requirements.
13.12.130 Connection with through lane—Curve radius.
13.12.140 Parking lot size—Requirements.
13.12.150 Lot requirements for off-street loading docks.
13.12.160 Deviations.
13.12.170 Abandoned driveways.
13.12.180 Nonconforming driveways—Notice to remove—Failure to comply.
13.12.190 Sight obstruction prohibited when—Notice to remove—Failure to comply.
13.12.200 Driveway aprons required.

13.12.010 Driveway defined.

The term "driveway," as used in this chapter, means any portion of the normal sidewalk area, including grass plot, curb, gutter and sidewalks, of the streets, roadways and alleys of the metropolitan government intended for use by vehicles as a means of ingress and egress between public right-of-way and abutting property. (Prior code § 27-1-190)

13.12.020 Construction—Regulations.

Construction of all driveways shall be as required by current regulation, specifications and drawings of the division of engineering, department of public works, and to the lines and grades furnished by the engineering division. Any work performed prior to furnishing of lines and grades or not meeting specifications and regulations shall be removed or reworked by and at the expense of the person responsible for the work. (Prior code § 27-1-204)

13.12.030 Review of driveway application—Duty of chief engineer.

It shall be the duty of the department of public works to give due consideration to the convenience, safety and requisite movement of pedestrian and vehicular traffic on the streets and alleys when reviewing a driveway application. (Ord. 93-575 § 4(u), 1993; prior code § 27-1-192)

13.12.040 Duty of property owner.

It shall be the duty of all persons owning property abutting on the streets in the metropolitan government area who make provision for vehicular access to and from streets and alleys and private properties, to give due consideration to the convenience, safety and requisite movement of pedestrian and vehicular traffic on the streets and alleys. (Prior code § 27-1-191)

13.12.050 Construction—Authorization required.

Authorization for driveway construction shall be secured from the traffic and parking commission and the department of public works prior to the beginning of construction, such as the cutting of any grass plot, gutter or sidewalk, for the purpose of construction of any driveway. (Prior code § 27-1-194)

13.12.060 Authorization—Application.

A. Applications for authorization of construction, reconstruction or major repair of driveways shall be made on forms prescribed by the traffic and parking commission and the department of public works. Applications shall be signed by the property owner or lessee and contractor, if any, and shall be accompanied by a clear drawing or blueprints, in triplicate, showing the exact location and dimensions of the driveway with reference to the property to be served, and a brief explanation of proposed usage of property and shall include property lines, rights-of-way, nearest intersecting streets and alleys, distance from right-of-way lines to gasoline pumps, structures or other improvements on the property, proposed treatment of public right-of-way adjacent to the driveway, utility poles, fire hydrants, traffic-control devices, parking meters and bus stops near the proposed driveway.

B. Applications for driveways shall be filed at the department of public works simultaneously with filing of application for building permits for all properties where new buildings or reconstruction of existing build-

ings or other improvements are contemplated. (Prior code § 27-1-195)

13.12.070 Authorization—Expiration.

Driveway authorizations are valid for a period of one year from date of approval. Actual construction must begin before expiration of approval. No notice of expiration will be issued, and authorizations will automatically terminate unless renewal is authorized in writing by the traffic and parking commission and the department of public works. (Prior code § 27-1-196)

13.12.080 Applications—Appeals.

A. All appeals for driveway applications will be made to the traffic and parking commission.

B. Appeals will be made only after driveway application has been denied by the department of public works. (Ord. 93-575 § 4(v), 1993; prior code § 27-1-193)

13.12.090 Construction costs—Owner responsibility.

All costs of driveway construction or major driveway repair shall be borne by the owner or lessee of the property to be served. (Prior code § 27-1-197)

13.12.100 Location.

Driveways shall be so located that vehicles entering or leaving the establishment will not interfere with the free movement of traffic or create a hazard on the highway. Where feasible, they shall be located where there are no sharp curves and steep grades and where sight distance is adequate for safe traffic operation. Driveways should not be located within intersections, rotaries and interchanges or on highways, immediately approaching them. They shall be so located that they will not interfere with the placement of signs, signals or other devices that affect traffic operation. (Prior code § 27-1-200)

13.12.110 Dimension and location requirements.

A. Driveways for single-family residential use, as designated in the zoning ordinances, shall be not less than twelve feet nor more than twenty-two feet in width.

B. Driveways for other than single-family residential use as designated in the zoning ordinances, shall be not less than fifteen feet nor more than thirty-five feet in width. The total width of driveways shall not exceed forty per cent of the property length in which the driveways shall be located.

C. The width of driveways shall be measured parallel to the street at the property line. The minimum permissible distance between driveways shall be twenty-five feet.

D. Driveways on corner lots shall be constructed at least fifteen feet from the intersection of the property lines, or the property lines extended, at the block corner.

E. Driveways shall not encroach on any part of the curb return at street corners.

F. Driveways shall not be located nearer than four feet to the side property line, at the curbline.

G. A buffer strip, not less than four feet in width, shall be provided on private property parallel to and adjoining the public right-of-way to prevent encroachment upon such right-of-way by parked vehicles. Such buffer strip shall extend along the property frontage for the full extent of the property area to be utilized for parking. Such buffer strip shall include a physical barrier not less than eight inches or more than thirty-six inches in height located adjacent to the parking area.

H. Private sidewalks along the face of the buildings are desirable and will require additional setback of a distance equivalent to the width of sidewalk.

I. Driveways shall be constructed to clear utility poles, light standards, drainage structures, signs, traffic-control device, fire hydrants and other similar installations, or such facilities shall be relocated at the expense of the property owner or lessee in conjunction with the owners or operating authorities of the facilities affected. (Prior code § 27-1-198)

13.12.120 Sight distance requirements.

A. Where feasible within the frontage limits, any driveway shall be located so as to afford maximum sight distance along the highway.

B. Where a driveway is provided to a commercial establishment, the buffer area and adjacent border area shall be reasonably cleared so that either the establishment itself or an appropriate sign located outside the right-of-way can be seen at a sufficient distance to enable proper maneuvers on the part of the drivers desiring to enter the establishment.

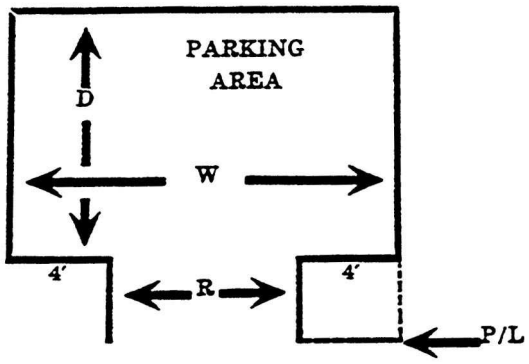
C. The profile of the driveway and the grading of the buffer area shall be such that a driver of a vehicle that is standing on the driveway may see a sufficient distance in both directions to enable him to enter the highway without creating a traffic hazard. (Prior code § 27-1-199)

13.12.130 Connection with through lane—Curve radius.

Where space permits, the radius of curve connecting the edge of through traffic lane and edge of driveway

shall be the maximum radius to permit turns by the largest vehicle to be expected with some frequency and not to exceed twenty feet maximum radius of curvature. For narrow border conditions, the combination driveway width and edge radius of smaller dimension should be adequate to this end. The radii for driveways on streets on which there are outer parallel parking lanes shall be based on turns from the edge of through lane. (Prior code § 27-1-201)

13.12.140 Parking lot size—Requirements.



D = Depth of parking area

W = Width of parking area

R = Width of driveway

B = Four-foot wide buffer zone

P/L = Property line

A. For head-in parking, the minimum depth (D) shall be forty-five feet and the minimum width (W) shall be fifty feet.

B. For parking stalls arranged parallel to the street right-of-way:

1. If W is forty feet to forty-eight feet, then D must be the number of car spaces multiplied by nine feet, plus ten feet.

2. If W is forty-eight feet to sixty-seven feet, then D must be the number of car space times nine feet.

3. If W is sixty-seven feet to one hundred fifteen feet, then D must be the number of car spaces multiplied by four and one-half feet.

4. If W is one hundred fifteen feet to one hundred thirty-four feet, then D must be the number of car spaces times three feet.

5. If W is one hundred thirty-four feet to one hundred seventy-three feet, then D must be the number of car spaces multiplied by two and one-quarter feet.

C. For head-in parking at a sixty degree angle to the building line, the minimum width (W) shall be seventy-five feet and the minimum depth (D) shall be forty feet. (Prior code § 27-1-202)

13.12.150 Lot requirements for off-street loading docks.

A. Maneuvering area shall be provided entirely on private property for all vehicles using loading docks or doors.

B. The loading dock or door shall be set back far enough from the right-of-way so that no portion of the right-of-way is occupied by trucks or other vehicles while loading or unloading.

C. The minimum setback for a loading dock or door shall be forty-five feet from the right-of-way. Where tractor-trailer units will be using the facility, the minimum setback shall be sixty-five feet.

D. For any proposed parking pattern which provides for parking headed into the side property lines at any angle other than ninety degrees, driveways will be approved, subject to all other conditions of this chapter, only if proper one-way operation of the parking area is provided. (Prior code § 27-1-203)

13.12.160 Deviations.

The traffic and parking commission and the department of public works may grant permission for deviations from the requirements specified in this chapter, provided one or more of the following conditions exists:

A. Unusual physical conditions requiring special construction;

B. Impossibility of improvement of the property with normal driveway location, where granting deviation requested will not be contrary to public safety, convenience and welfare;

C. Where granting of the deviation requested will not adversely affect present or future rights or development of adjacent property. (Prior code § 27-1-205)

13.12.170 Abandoned driveways.

Any driveway abandoned for vehicular use due to changes in property development or use shall be removed and the site reformed to conformity with adjacent existing conditions. (Prior code § 27-1-206)

13.12.180 Nonconforming driveways—Notice to remove—Failure to comply.

A. Any person violating any of the provisions contained in this chapter shall be notified that the offending driveway construction, reconstruction or repairs shall be removed. Notification shall be made by the traffic and parking commission in writing to the property

owner or lessee and contractor, if any, to the effect that the offending work must be removed within ten days from the date of notification, and the driveway replaced to conform to the provisions contained in this chapter.

B. In the event of failure to comply with notification, the metropolitan government will make the necessary driveway corrections and assess the costs against the property abutting driveway. (Prior code § 27-1-207)

13.12.190 Sight obstruction prohibited when—Notice to remove—Failure to comply.

A. It is unlawful for any person to place or cause to be placed or maintained, either temporarily or permanently, any sign, card, poster, pennant, banner, bush, tree, hedge or other obstruction:

1. On private property within twenty-five feet of any street intersection so as to interfere with traffic visibility at the intersection and at no time higher than thirty inches above the crown of the adjacent roadway;

2. On private property in such a manner as to interfere with traffic visibility of any driver using an authorized driveway, alley or roadway;

3. Within the right-of-way of any street within the area of the metropolitan government;

B. Any person violating any of the provisions of this section shall be notified by the traffic and parking commission that the offending sight restriction shall be removed within fifteen days after notification;

C. If the sight restriction is not removed within fifteen days after notification, the traffic and parking commission shall remove said sight restriction, either with metro forces or by normal metro contract procedures, and the expense incurred by metropolitan government in removing the restrictions shall be a debt owed to metropolitan government by the owner of the property in violation and shall be recoverable in an action brought by the metropolitan government. (Ord. 92-398 § 1, 1992; prior code § 27-1-208)

13.12.200 Driveway aprons required.

All driveways constructed or modified to the point of requiring a new driveway authorization application after July 1, 2020 shall have an apron to be paved with a hard surface from the edge of street pavement or the back edge of the sidewalk, if present, to the edge of the right-of-way or ten feet, whichever is greater. If the distance from the edge of street pavement or back edge of the sidewalk, if present, to the edge of the right-of-way exceeds ten feet, the chief engineer shall have the authority to permit an alternate design. The design and construction of this required apron shall not impede any drainage way. (Ord. BL2020-188 § 1, 2020)

Chapter 13.16

ENCROACHMENTS

Sections:

13.16.010	**Encroachment without permit prohibited—Penalty for violation.**
13.16.020	**Application fee.**
13.16.030	**Permits or privileges granted by council resolution—Fee.**

13.16.010 Encroachment without permit prohibited—Penalty for violation.

No person may construct, maintain and/or operate any aerial cable, canopy, sign or other encroachment over and/or across any sidewalk or public right-of-way without first obtaining a permit from the metropolitan government. Any person convicted of a violation of this section by constructing, maintaining or operating such encroachments within the previous six months of making an application for a permit for such an encroachment shall not be granted a permit by metropolitan government. (Amdt. 1 to Ord. BL2000-444 § 1, 2000; Ord. 99-1295 § 1, 1999)

13.16.020 Application fee.

Any person making application for a license agreement or permit shall, in addition to filing the appropriate application as required by the department of public works, pay to the metropolitan government a fee of fifty dollars to cover the cost of processing such application and issuing of such license or permit. (Ord. 90-1295 § 2, 1990)

13.16.030 Permits or privileges granted by council resolution—Fee.

A. The metropolitan county council may, by resolution adopted by twenty-one affirmative votes, grant encroachments, permits or privileges to construct, maintain and/or operate aerial cables, canopies, etc., over and/or across sidewalks and public rights-of-way.

B. Any person, firm or entity requesting an encroachment, permit or privilege as provided herein shall pay to the metropolitan government a fee in the amount of one hundred dollars upon making such request.

C. Any person, firm or entity requesting construction of any building or for the alteration of any building where such building is to be changed and such change will affect the exterior wall, bays, balconies or other appendages or projections encroaching on, over or under any street, alley or public lane shall comply with the Metropolitan Building and Fire Codes. Depending upon the type of encroachments, permits are required and issued by the codes administration for such construction. This permit is in addition to any application or permit fees required by the department of public works. (Ord. 95-1487 § 88, 1995; Ord. 91-1652 § 1, 1991; Ord. 87-1890 § 1, 1987)

Chapter 13.18

MANAGEMENT OF PUBLIC RIGHTS-OF-WAY FOR MAKE READY WORK

Sections:

13.18.010 Definitions.
13.18.020 Make ready process.

13.18.010 Definitions.

As used in this chapter, the following terms shall have the meanings ascribed to them in this section:

"As-built report" means a report indicating any changes to an attachment caused by make ready, including a unique field label identifier, the pole number if available, and the address or coordinates of the attachment.

"Attacher" means any person, corporation, or other entity or its agents or contractors seeking to fasten or affix any attachment in the public rights-of-way.

"Attachment" means communications equipment, antenna, line, or facility of any kind fastened or affixed to a utility pole or similar structure, or its guys and anchors used to support communications attachments.

"Attachment application" means the application made by an attacher to an owner for consent to attach such attacher's attachments to the owner's utility pole or similar structure, or its guys and anchors used to support communications attachments.

"Complex make ready" means make ready that will cause or would reasonably be expected to cause a customer outage.

"Make ready" means the transfer, relocation, rearrangement, or alteration of a pre-existing third party user's communications equipment, antenna, line or facility of any kind necessary to provide space for attacher to install an attachment.

"Owner" means a person, corporation, or other entity owning a utility pole or similar structure in the public rights-of-way on which facilities for the transmission of electricity or communications are or may be located.

"Preapproved contractor" means a contractor approved by the owner to perform make ready.

"Pre-existing third party user" means the owner of any pre-existing attachment located in the public rights-of-way. (Amdt. 1 to Ord. BL2016-343 § 1, 2016; Ord. BL2016-343 § 1, 2016)

13.18.020 Make ready process.

A. Upon approval of an attachment application by an owner, pre-existing third party users shall allow an attacher, using preapproved contractors and at the attacher's expense, to perform make ready by transferring, relocating, rearranging, or altering the attachments of any pre-existing third party user to the extent necessary or appropriate to accommodate the attacher's attachment; provided, however:

1. The attacher will not perform complex make ready without first providing thirty days' prior written notice, which includes electronic communication, to the applicable pre-existing third party user so that a field meeting can be scheduled within that time frame with technicians from the pre-existing third party and the attacher. The technicians will decide what steps need to be taken to complete the complex make ready;

2. Nothing in this chapter authorizes an attacher to perform any act requiring an electric supply outage; and

3. Nothing in this chapter authorizes an attacher to perform any act with respect to attachments located above the communication worker safety zone, as such term is defined in the then-current National Electrical Safety Code, or any electric supply facilities wherever located.

4. The attacher will not perform make ready without first providing fifteen days' prior written notice, which includes electronic communication, to the applicable pre-existing third party user.

B. In the event a pre-existing third party user fails to transfer, relocate, rearrange or alter any of its attachments within thirty days of giving the written notice required in Section 13.18.020(A)(1), the attacher, using pre-approved contractors, may undertake complex make ready with respect to such attachments by transferring, relocating, rearranging, or altering the attachments at the attacher's expense; provided, however, that the pre-existing third party user will have sixty days from the date of notice to perform complex make ready if the technicians mutually agree to such extension in the field meeting required in Section 13.18.020(A)(1).

C. The attacher will place its attachment where instructed by the owner.

D. At its own expense, attacher shall ensure that any make ready attachments that are transferred, relocated, rearranged or altered are done in accordance with all applicable federal, state and local laws and regulations; and all applicable engineering and safety standards.

E. An attacher that exercises the right to transfer, relocate, rearrange or alter a pre-existing third party user's facilities pursuant to this chapter shall obtain and maintain, at its sole cost and expense, and file with the metropolitan clerk, a corporate surety bond with a surety company authorized to do business in the State of Tennessee and found acceptable by the metropolitan attorney, in the amount of one million dollars, both to safeguard the public right-of-way and to guarantee the timely performance of make ready construction and

implementation of the telecommunications system. Additionally, such attachers, to the extent permitted by applicable law, shall indemnify, defend and hold harmless the owner of the affected utility pole or similar structure from and against any action, suit, or proceeding by an affected pre-existing third party user arising from such transfer, relocation, rearrangement or alteration.

F. If a transfer, relocation, rearrangement, or alteration results in an attachment of a pre-existing third party user failing to conform with the applicable owner's clearance, separation, the standards in Section 13.18.020(D), or other standards applicable to utility poles or structures of the type in question, the pre-existing third party user or owner shall notify the attacher in writing, which includes electronic communication, within the sixty day inspection window without waiving any rights. In the written notice, the pre-existing third party user will elect to either (i) perform the correction itself and bill the attacher for the actual, reasonable, and documented expenses of the correction incurred by the pre-existing third party user, or (ii) instruct the attacher to perform the correction at the attacher's expense using a pre-approved contractor. Any post-inspection corrections performed by the attacher must be completed within thirty days of written notice to the attacher from the pre-existing third party user or owner. Within thirty days of the attacher's completion of any post-inspection corrections that resulted in the transfer, relocation, rearrangement, or alteration of an attachment of a pre-existing third party user, the attacher shall send written notice, which includes electronic communication, of the transfer, relocation, rearrangement, or alteration and as-built reports to the applicable pre-existing third party user and, if requested, the owner.

G. To the extent permitted by applicable law, an attacher that exercises the right to transfer, relocate, rearrange or alter a pre-existing third party user's facilities pursuant to this chapter shall indemnify, defend and hold harmless the owner of the affected utility pole or similar structure from and against any action, suit, or proceeding by an affected pre-existing third party user arising from such transfer, relocation, rearrangement or alteration.

H. In the event of a dispute arising out of this chapter, the parties may exercise any of their legal rights, including the ability to negotiate a resolution in good faith. (Amdt. 3 to Ord. BL2016-343 § 1, 2016; Amdt. 1 to Ord. BL2016-343 § 1, 2016; Ord. BL2016-343 § 1, 2016)

Chapter 13.20

EXCAVATIONS AND OBSTRUCTIONS

Sections:

13.20.010	**Definitions.**
13.20.020	**Permission and notice required.**
13.20.030	**Permit.**
13.20.040	**Penalty for violation.**
13.20.045	**[Enforcement of county-wide emergency health orders.]**
13.20.050	**Permit—Bond and insurance required.**
13.20.060	**Hours of work—Regulations.**
13.20.070	**Utility manholes—Testing for flammable or toxic gases required.**
13.20.080	**Utility manholes—Two work people required at all times.**
13.20.090	**Barricades required when.**
13.20.095	**Commencement date and completion date signs required.**
13.20.100	**Unguarded excavations prohibited.**
13.20.110	**Night work—Warning lights required.**
13.20.120	**Interfering with warning lights prohibited.**
13.20.130	**Refilling excavation sites.**
13.20.140	**Replacement of sidewalks, pavements and other special structures required—Specifications.**
13.20.150	**Regulations.**
13.20.160	**Policy compliance and exceptions.**

13.20.010 Definitions.

As used in this chapter:

"Director" means the director of the metropolitan government department of public works or his designee.

"Excavation" means the digging of any ditch, drain, trench, hole, or similar activity; whether permanent or temporary.

"Obstruction" means any structure, embankment, device, item or thing placed or existing within the right-of-way of the metropolitan government which hinders, impedes or affects the flow of traffic, whether such obstruction is permanent or temporary.

"Person" means any and all persons, natural or artificial, including but not limited to any individual, firm, association, partnership or corporation. (Ord. 97-785 § 1 (part), 1997)

13.20.020 Permission and notice required.

A. No person shall dig or cause to be dug any excavation nor cause any obstruction to be constructed or placed in, on, over or under any street, road, alley, sidewalk or other public way, nor shall any person close or occupy any portion of the public right-of-way by means of or in connection with any excavation or obstruction within the jurisdiction of the metropolitan government without having first applied for and obtained from the director a permit to do so.

B. 1. No excavation may be undertaken in any street, road, alley or right-of-way or of any utility or temporary construction easement of the metropolitan government or other government entity by any department of the metropolitan government or any other entity unless notice as required herein has been given to the following: occupant of the property abutting a street, road, alley, or right-of-way in which work is to be performed; the fee owner and occupant of the property burdened by the easement in which work is to be performed; all occupants within the block where such work is to be performed; and the district member(s) of council representing the area of such excavation.

a. For the purposes of this subsection, adequate notice shall be written notice providing the following information: (1) the purpose of the excavation; (2) a description of the excavation work; (3) the expected beginning date and completion date of the excavation work; (4) the name, address, and telephone number of a contact person available to provide information regarding the project and to receive complaints from the public; and (5) such other information as may be required by the director. Such notice shall be given to the persons provided above at least forty-eight hours prior to the beginning of any such construction work. The person holding the excavation permit shall deliver to the director a signed statement containing the list of persons notified or the addresses of the occupants notified and what manner of notification was used prior to commencement of work.

2. In the event such construction work is for emergency repairs to a utility or other public works, the notice required herein shall be waived, provided, that notice shall be given as soon as practicable to the owner setting forth both the work being undertaken and the purposes for such emergency repairs.

C. At the end of each quarter, the department of public works shall submit to the metropolitan council a report that includes the following information for any portion of the public right-of-way that is closed or occupied for a period in excess of six months:

1. The date the permit was issued.

2. The date the permit was renewed, if applicable.

3. The location of the closed or occupied right-of-way.

4. The council district in which the closed or occupied right-of-way is located.

5. The original expiration date of the permit and the original planned date to re-open the right-of-way.

6. The revised expiration date of the permit and the revised planned date to reopen the right-of-way, if applicable. (Ord. BL2022-1530 § 1, 2022; Amdt. 1 to Ord. BL2017-801 § 1, 2017; Ord. BL2017-801 § 1, 2017; Ord. BL2013-380 § 1, 2013; Ord. BL2000-443 § 1, 2000; Ord. 97-785 § 1 (part), 1997; Amdt. 1 with Ord. 93-815 § 1, 1993)

13.20.030 Permit.

A. No permits affecting multimodal pathway travel within the public way or public right-of-way shall be issued for any construction activities or special events for a period of seven days or more. Otherwise, permits shall be issued by the director to any person qualified under Section 13.20.050 of the metropolitan code, meeting all other requirements of this chapter, and upon receipt of the appropriate permit fee.

B. In connection with the issuance of a permit under this chapter, the director shall have the authority to close temporarily or to authorize temporary closure of any street, road, alley, sidewalk, or any other public way or part thereof when, in the director's opinion, the closing is necessary. No public way shall be closed for any purpose without first obtaining a permit from the director.

C. In connection with the issuance of a permit under this chapter, the director may install, or may require installation and maintenance of, traffic-control devices. Such devices and their placement shall meet the requirements of the latest edition of the Manual for Uniform Traffic Control Devices (MUTCD). The director shall adopt rules and standards with regard to this requirement, particularly as to safe accommodation for cyclists and pedestrians, including accessibility for disabled persons, and make compliance therewith a condition upon the issuance of a permit under this chapter.

D. Excavation Permits.

1. Each separate excavation shall require a permit. Excavated areas of up to five square meters (six square yards) of surface area shall constitute an excavation. Trench excavations running parallel to traffic shall require a permit for each fifty linear feet. The fee for excavation permits shall be fifty-five dollars each, except within the right-of-way permit high impact area, where the fee shall be one hundred dollars for each permit (up to fifty linear feet). Any excavation permit requested and issued involving roadway pavement on any roadway that has been newly constructed or resurfaced within the past five years in addition to the other fees provided in this section shall require the payment of a pavement assessment fee. The pavement assessment fee shall be equal to five hundred dollars plus twenty percent of the cost to restore the excavation per existing pavement restoration specifications of the department of public works. The cost shall be based on the average cost of similar work performed by metro in the previous year and shall be updated annually by the director of public works. Each year on or about January 1st, the director of public works shall publish the pavement assessment fee. For the purposes of this section, the phrase "right-of-way permit high impact area" shall mean the area bounded as follows: Beginning at the intersection of I-65 North and Briley Parkway, thence; in an easterly and then in a southerly direction along Briley Parkway, to I-40 east of Nashville. Thence; continuing with Briley Parkway in a southerly then westerly direction, to I-24 south of Nashville. Thence; along Thompson Lane in a westerly direction, to I-65 south of Nashville. Thence; along Woodmont Boulevard in a westerly direction, to Harding Pike (HWY 70 S). Thence; along White Bridge Road in a northerly direction, to I-40 west of Nashville. Thence; along Briley Parkway in a northerly and then easterly direction to the point of beginning at I-65 north of Nashville.

2. All excavation restoration will be the responsibility of the permittee and shall conform to the specifications of the department of public works; and shall be subject to the approval of the director of public works.

E. Obstruction Permits.

1. Permits shall be issued for temporary obstructions only. Permanent obstructions are prohibited. Except as hereinafter provided, the fee for an obstruction permit shall be fifty-five dollars per day per location.

2. The fee to place a trailer or dumpster in the public right-of-way shall be set by the department of public works, as derived from the actual internal operating costs of administering related services, as determined by the department.

F. Permit Fees for Parking Meter Occupancy. When an excavation or obstruction prevents the use of parking spaces regulated by meter, a parking meter occupancy fee shall be paid by the permittee in accordance with rates established by the traffic and parking commission.

G. Right-of-Way Temporary Closure Permits and Fees. In addition to any other fees required by this chapter, permits requiring the temporary closure of the metropolitan government's rights-of-way shall be subject to fees set by the department of public works, as derived from the actual internal operating costs of administering related services, as determined by the department based upon the scale and duration of the closure.

H. Waiver. Fees may be waived by the director for the following:

1. Metro departments performing roadway or roadway feature related maintenance, repair or construction;

2. Activities of federal, state or local governments;

3. When the director finds that it is necessary to close the public way for the immediate protection of public safety. (Amdt. 1 to Ord. BL2022-1530 §§ 3, 4, 2022; Ord. BL2022-1530 §§ 2—4, 2022; Res. RS2016-391 §§ 1, 2, 2016; Ord. BL2016-240 § 1, 2016; Ord. BL2016-235 §§ 1—3, 2016; Ord. BL2004-260 §§ 1—8, 2004; Ord. 97-785 § 1 (part), 1997)

13.20.040 Penalty for violation.

In addition to any other penalty imposed or failure to obtain a permit required under this chapter, if commenced before a permit is issued, the permit fees or any permit subsequently issued for that activity shall be tripled. (Ord. 97-785 § 1 (part), 1997)

13.20.045 [Enforcement of county-wide emergency health orders.]

Notwithstanding any other provision of this title, it is a condition of any permit or work authorization issued pursuant to the authority granted herein, including those issued prior to the effective date hereof, that the permittee and its employees abide by applicable laws, rules, regulations and orders, including without limitation those emergency orders issued by the chief medical director in connection with a declared state of emergency in all or part of Davidson County. Employees of a department that has authorized work or issued a permit pursuant to this title may order the cessation of work or specific activities, or the suspension of a permit, on any work site operating under such permit, for a violation of an emergency order.

Notice of the stop work order shall be in writing and shall be given to the owner of the property or to his agent or to the person in charge of the work or overseeing the operation. When, in the opinion of the director of the department that authorized work or issued a permit, or the director's agent, that an emergency exists, a written stop work order shall not be required, and in such instances, oral notice to the owner, his agent or the person in charge of the work shall have the same force and effect as a written order. Any violation of the stop work order shall be assessed as a civil penalty at the rate of fifty dollars per day. In addition, where a violation exists, the director of the department or the director's agent may request that utility service be curtailed until the violation is corrected or abated. Appeals from the stop work order may be made to the relevant board or commission that oversees the authorization of the work or issuance of the permit. (Ord. BL2020-421 § 1, 2020)

13.20.050 Permit—Bond and insurance required.

A. No excavation or obstruction permit shall be issued to any person until such person shall first have posted a payment and performance bond satisfactory to the director. The amount of the bond shall be equal to the estimated cost of the work, but shall not be less than forty thousand dollars.

B. It shall be the responsibility of the permittee to furnish to the department of codes administration a permit bond in the amount of forty thousand dollars, conditioned to conform to the requirements of this chapter and all applicable laws, ordinances, rules and regulations of the metropolitan government relating to installations for which a permit is required, or for work performed by the principal for which a permit should have been obtained; and to indemnify the metropolitan government and property owners against any and all loss by reason of the failure of such contractor to comply with such laws, ordinances, rules and regulations. Such bond shall be continuous and may not be canceled without at least ten days' prior notice, in writing, to the director of codes administration. The liability of the surety shall continue to attach to work performed pursuant to any permit issued prior to the termination date of the bond even if the noncomplying act should occur after the termination date of the bond. The liability of the surety for any and all claims, suits or action under this bond shall not exceed the bond penalty of forty thousand dollars. The bond shall be issued by a U.S. Treasury-listed corporate surety or a Tennessee domestic insurance company on forms provided by the department of codes administration.

C. It shall be the responsibility of the permittee to furnish a current certificate of public liability insurance issued by a Tennessee-licensed company which provides a minimum of one million dollars per occurrence, except

municipalities and other political subdivisions of the State of Tennessee shall have furnished certificate of liability insurance in the amount equal to or greater than minimum limits of liability insurance required for governmental entities in the Tennessee Governmental Tort Liability Act. Tennessee Code Annotated Section 29-20-403. The certificate of insurance shall name the metropolitan government as an additional insured and may not be canceled without at least thirty days' prior notice, in writing, to the director. (Ord. 97-785 § 1 (part), 1997)

13.20.060 Hours of work—Regulations.

Every person holding a valid permit from the director of public works to perform an excavation or to otherwise cause any obstruction in, on or under any street, road, alley, sidewalk or other public way within the jurisdiction of the metropolitan government shall perform the work or activity permitted only within the hours stipulated on such permit. Work not completed during any stipulated period of hours shall be bridged, backfilled or otherwise rendered usable for pedestrian or vehicular traffic, as specified by the director of public works, until the next period of hours during which work is permitted. Each violation of the permitted hours of work shall constitute a violation of this section. Any person found guilty of two or more offenses shall be disqualified for obtaining further permits for a period not to exceed six months. (Ord. 97-785 § 1 (part), 1997)

13.20.070 Utility manholes—Testing for flammable or toxic gases required.

No person engaged in working in and around any utility manhole shall enter any such utility manhole until testing by instrument or other acceptable method has been performed to determine whether or not such manhole is free from toxic or flammable gases and liquids. When tests indicate the presence of toxic or flammable gases or liquids, the manhole shall be properly ventilated prior to the entering of the manhole by any person. Tests shall be repeated at such intervals as are necessary to make certain that toxic or flammable gases or liquids do not recur in hazardous quantities. (Ord. 97-785 § 1 (part), 1997)

13.20.080 Utility manholes—Two work people required at all times.

No work shall be performed in or about any utility manhole in or adjoining any highway, street, alley, sidewalk or any public place, with less than two persons present at all times. (Ord. 97-785 § 1 (part), 1997)

13.20.090 Barricades required when.

Any person who shall dig or cause to be dug any excavation or cause obstruction to be placed in, on, under, across or adjoining any street, alley, road, sidewalk or other public way or shall perform work in and around any utility manhole in or adjoining any public way within the jurisdiction of the metropolitan government shall have the same guarded at all times with a substantial barricade complying with the requirements of MUTCD and approved by the director, sufficient and suitable to warn persons traveling on or using such street, road, alley, sidewalk or other public way of the presence of such excavation or utility manhole and against danger therefrom. (Ord. 97-785 § 1 (part), 1997)

13.20.095 Commencement date and completion date signs required.

Any person, including any department, agency or contractor of the metropolitan government, or any public utility, that shall dig or cause to be dug any excavation, or cause any obstruction to be placed in, on, under, across or adjoining any street, road, or other public way in connection with any non-emergent excavation, construction, or paving project that is estimated to last seven or more days in duration shall — at least seven full calendar days in advance of such activity — display a sign visible to the motoring public indicating the expected commencement date and completion date for the project, as well as the name, address, and telephone number of a contact person available to provide information regarding the project and to address inquiries from the public. Such signs shall be in a format, quantity, location, and size as specified by the director. (Ord. BL2022-1530 § 5, 2022; Amdt. 1 with Ord. BL2004-235 § 1, 2004)

13.20.100 Unguarded excavations prohibited.

It is declared to be a nuisance and unlawful for any person to make any excavation or to establish any opening adjacent to any sidewalk or public right-of-way within the jurisdiction of the metropolitan government without the erection of barricades or other proper precautions to prevent danger to persons or vehicles passing along such sidewalk or public right-of-way. Each day that such excavation or opening shall remain without barricade or other proper precaution shall constitute a separate offense. (Ord. 97-785 § 1 (part), 1997)

13.20.110 Night work—Warning lights required.

A. Any person who shall dig or cause to be dug any excavation or cause any obstruction to be constructed in, on, under, across or adjoining any street, road, alley,

sidewalk or other public way or shall perform work in and around any utility manhole in or adjoining any public way within the jurisdiction of the metropolitan government shall, in addition to the barricades required by Section 13.20.090, post or otherwise place red or amber lights at the ends and sides of each excavation, utility manhole or other obstruction during the entire night, and if such excavation or other obstruction shall extend more than fifty feet along such street, road, alley, sidewalk or other public way, then additional red or amber lights shall be placed each twenty-five feet or fraction thereof. Where excavations or obstructions shall extend across any street, road, alley, sidewalk or other public way, red or amber lights shall be placed at six-foot intervals along such excavation or other obstructions.

B. All such lights shall be of a type approved by the director of public works and shall be secured in such manner as not to be displaced by winds or storms. (Ord. 97-785 § 1 (part), 1997)

13.20.120 Interfering with warning lights prohibited.

No person shall break, molest, put out, remove or in any manner interfere with any warning lights required by this chapter. In addition to any criminal penalty that may be applicable, any violation of this provision shall be assessed as a civil penalty at the rate of fifty dollars per day. (Ord. BL2022-1530 § 6, 2022; Ord. 97-785 § 1 (part), 1997)

13.20.130 Refilling excavation sites.

Every person who shall dig or cause to be dug any excavation in, on, under or across any street, road, alley, sidewalk or other public way within the jurisdiction of the metropolitan government shall carefully refill all such excavations by placing and firmly compacting with crushed stone in paved areas and roadway shoulders pending replacement of pavements or other improvements; and shall fill with selected earth materials in unpaved or otherwise unimproved areas. The director may in his discretion require the use of concrete or flowable fill in lieu of crushed stone backfill. (Ord. 97-785 § 1 (part), 1997)

13.20.140 Replacement of sidewalks, pavements and other special structures required—Specifications.

A. Every person excavating in, on, under or across any street, road, alley, sidewalk or other public way within the jurisdiction of the metropolitan government shall replace all curbs, gutters, sidewalks or other special structures disturbed, displaced or removed, at the expense of the person making the excavation and in accordance with the standard requirements and specifications of the department of public works. (No additional permit fee shall be required for such replacement, other than as specified in Section 13.20.030.)

B. Pavements, other than curbs, gutters and sidewalks, removed or damaged as a result of excavating in, on, under or across any street, road, alley or other public way within the jurisdiction of the metropolitan government shall be replaced by and at the expense of the person making such excavation. The pavement replacement shall be performed by a reputable paving contractor within thirty days of backfilling the excavation; or within such shorter or longer time as the director may require. All pavement replacement under this subsection shall be made in accordance with the requirements of Section 02522 of the department of public works specification documents, shall provide an even grade and level surfacing to facilitate transit, and shall only be performed during the presence of inspection personnel of the department of public works. (Ord. BL2022-1530 § 7, 2022; Ord. 97-785 § 1 (part), 1997)

13.20.150 Regulations.

The director shall have authority, with the approval of the mayor, to implement this chapter by appropriate rules and regulations. (Ord. 97-785 § 1 (part), 1997)

13.20.160 Policy compliance and exceptions.

A. Any person seeking to dig, or cause to be dug any excavation, or to cause any obstruction in, on, over or under any street, road, alley, sidewalk, or other public way, or to close or occupy any portion of the public right-of-way by means of or in connection with any non-emergent excavation or obstruction within the jurisdiction of the metropolitan government, prior to engaging in such activities, shall satisfy the following provisions:

1. If the digging, excavation, or obstruction causes a closure of a public way less than seven days, the applicant will be required to provide an ADA compliant alternative pathway that will accommodate the safe passage of pedestrians, cyclists, and disabled persons for the duration of the closure. The alternative pathway shall be signed and marked in accordance with MUTCD, and shall, whenever feasible, be located on a public thoroughfare of equal or lesser traffic volume and intensity than the obstructed pathway with an equal level of protection provided for the user. Prior to the issuance of a permit, the applicant must provide a traffic control plan demonstrating these accommodations.

2. If the excavation or obstruction is estimated to cause a closure of a public way of seven days or more, the applicant must:

a) submit an application for an exception to the metropolitan government department of public works.

b) submit a construction package to the metropolitan government department of public works for review. This construction package shall include a traffic control plan signed by a professional engineer licensed in the State of Tennessee.

3. Closures in excess of ninety days are prohibited unless specifically approved by the director. Fees for inspection services for special events and parades shall be charged based on time required at the rate set for inspector services provided per hour, as determined by the department of public works, as derived from the actual internal operating costs of administering such services. The amount of any permit bond, and the amount of any certificate of public liability insurance, as required under Section 13.20.050, may be increased by the director, commensurate with the duration of the excavation or obstruction.

4. The applicant must have obtained all other approvals and permits for said construction, excavation, or special event activities as required by the metropolitan code of laws.

5. The applicant must demonstrate that the overriding public interest (as opposed to the private interest of the applicant or the owner of the property upon which said construction or special event activities shall occur) will be significantly promoted by permitting the applicant to engage in activities in excess of that permitted under Chapter 13.20.

B. Notice of an application for an exception shall be given by the director of the metropolitan government department of public works to persons who may be adversely affected by the granting of the exception and to the district councilmember. Any person who claims to be adversely affected by such an exception, if allowed, may file a written statement with the director. Such statement shall contain sufficient factual information to support the claim.

C. Exceptions shall be granted by notice to the applicant containing any necessary conditions, including a time limit on the permitted activity. The exception shall not become effective until all conditions are agreed to by the applicant. Non-compliance with any condition of the exception shall terminate it and subject the person holding it to the requirements of Chapter 13.20. (Amdt. 1 to Ord. BL2022-1530 § 8, 2022; Ord. BL2022-1530 § 8, 2022)

Chapter 13.21

NASHVILLE DEPARTMENT OF TRANSPORTATION PARTICIPATION AGREEMENTS

Sections:

13.21.010 Definitions.
13.21.020 Participation agreements with developers.

13.21.010 Definitions.

The following definitions shall apply to this chapter:

"Developer" means any person or legal entity which undertakes development of real estate.

"Participation agreement" means an agreement whereby a developer agrees to undertake or fund, in whole or in part, the installation, operation, or maintenance of infrastructure projects and structures within the public right-of-way. (Amdt. 1 to Ord. BL2023-137 § 1, 2024)

13.21.020 Participation agreements with developers.

Participation agreements between the Nashville Department of Transportation and Multimodal Infrastructure and developers may be approved by the metropolitan council by resolution. (Amdt. 1 to Ord. BL2023-137 § 1, 2024; Ord. BL2023-137 § 1, 2024)

Chapter 13.24

PARKS, RECREATIONAL FACILITIES AND CEMETERIES

Sections:

Article I. General Regulations and Administration

13.24.010 Definitions.
13.24.020 Scope.
13.24.030 Construction.
13.24.040 Donations—Authority of board to accept—Exception.

Article II. Cemeteries

13.24.050 Operation and maintenance—Responsibilities of the board and the metropolitan historical commission.
13.24.060 Ownership of burial plots—Authority of board—Appeal.

Article III. Regulated Activities

13.24.070 Permits—Conditions—Revocation.
13.24.080 Hours.
13.24.090 Alcoholic beverages.
13.24.100 Bathing and swimming.
13.24.110 Boating.
13.24.120 Animals—Protection requirements.
13.24.130 Animals—Running at large.
13.24.140 Construction work.
13.24.150 Exhibitions and contests.
13.24.160 Fires and lighted cigarettes.
13.24.170 Fishing.
13.24.180 Games.
13.24.190 Horses and beasts of burden.
13.24.200 Meetings, assemblies and ceremonies.
13.24.210 Peddling.
13.24.220 Picnics.
13.24.230 Skating and sledding.
13.24.240 Model airplanes, boats and autos.

Article IV. Vehicles and Traffic

13.24.250 Compliance with police and park directions required.
13.24.260 Compliance with state and metropolitan traffic laws required.
13.24.270 Reckless driving prohibited.
13.24.280 Speed limits.
13.24.290 Restrictions on certain vehicles.
13.24.300 Areas of vehicle operation restricted.
13.24.310 Parking.
13.24.320 Operation off of paved roadway prohibited—Stalled vehicles.
13.24.330 Obstructing traffic prohibited.
13.24.340 Driving instruction prohibited.
13.24.350 Hitchhiking prohibited.
13.24.360 Soliciting passengers prohibited—Exceptions.
13.24.370 Towing and projecting articles prohibited—Exceptions.
13.24.380 Repair work on vehicles prohibited.

Article V. Unlawful Activities

13.24.390 Advertising and sponsorship on park property.
13.24.400 Aviation.
13.24.410 Camping.
13.24.420 Commercial fishing.
13.24.430 Disorderly conduct.
13.24.440 Explosives, fireworks and firearms.
13.24.450 Gambling.
13.24.460 Polluting.
13.24.470 Hunting and trapping wildlife—Carrying firearms.
13.24.480 Plant life—Disturbing, removing or destroying.
13.24.490 Property—Removing or destroying.

Article I. General Regulations and Administration

13.24.010 Definitions.

Unless otherwise expressly stated, whenever used in this chapter, the following terms shall respectively mean and include each of the meanings set forth:

"Bathing area" means any area maintained for the use of bathers, including the water area and lands under water adjacent thereto under the jurisdiction of the board.

"Bicycle path" means any path, road or trail maintained for persons riding on bicycles.

"Board" means the metropolitan board of parks and recreation as provided in Article 11, Chapter 10 of the Charter of the metropolitan government.

"Bridle path" means any path or road maintained for persons riding an horseback.

"Foot path or trail" means any path or trail maintained for pedestrians.

"Omnibus" means any vehicle held and used for transportation of passengers for hire.

"Owner" means any person owning, operating or having the use or control of a vehicle, animal or other property under a lease or otherwise.

"Park." Unless specifically limited, "park" means and shall be deemed to include all parks, parkways, playgrounds, athletic fields, tennis courts, golf courses, swimming pools, beaches and other recreation areas, museums, zoological and botanical gardens, places, squares, circles, spurs, open places, boulevards, roads, waters and lands under water, and also entrances and approaches thereto, docks and piers, channels and bridges, in, leading to or connecting such park or parts thereof under the supervision and control of the board and such other rights and appurtenances as the board shall utilize, whether the same is now or shall hereafter be owned or acquired by the metropolitan government in fee or otherwise, including all land under and space above the surface of the ground. Included in such term shall be the following areas or properties owned or controlled by the U.S. Army Corps of Engineers:

1. Anderson Road Launching Ramp Area;
2. Anderson Road Picnic Area;
3. Cook Launching Ramp Area;
4. Cook Picnic Area;
5. Dam Site (including Overlook Tailwater Access Areas and Visitor Center Area);
6. Elm Hill Launching Ramp Area;
7. Elm Hill Picnic Area;
8. Four Corners Picnic Area;
9. Four Corners Launching Ramp Area;
10. Left Bank Tail Water Area (including the Nature Trail), Left Bank Dam Site (lock side), and Old Hickory Beach;
11. Seven Points Launching Ramp Area;
12. Seven Points Picnic Area;
13. Smith Springs Launching Ramp Area; and
14. Smith Springs Picnic Area.

"Permit" means any written authorization issued by or under the authority of the board for a specified park privilege permitting the performance of a specified act in the park.

"Playground area" means any area maintained or designated as a playground, including all territory under the supervision and control of the board adjacent to and within twelve feet thereof.

"Police officer" means any member of the police department of the metropolitan government and any other metropolitan employee who is a special policeman appointed and sworn by the chief of police and assigned to the board.

"Rules and regulations" means any rule or regulation of the board established pursuant to Section 11.1002, subsection 2, of the Charter of the metropolitan government, and duly filed with the metropolitan clerk.

"Safety zone" any space within any park so designated by appropriate signs.

"Unnecessary stopping" means bringing a vehicle to a complete stop on a parkway, or a road in a park other than a parking space, or other than in conformity with traffic regulations, or other than because of any emergency. (Ord. 90-1190 § 1, 1990; Ord. 89-959 § 1, 1990; prior code § 30A-1-1)

13.24.020 Scope.

This chapter affecting parks shall be effective throughout the general services district of the metropolitan government area within and upon all areas under the supervision and control of the board, as defined in Article 11, Chapter 10 of the Charter of the metropolitan government, and shall regulate the use thereof by all persons. (Prior code § 30A-1-2(b))

13.24.030 Construction.

In the interpretation of this chapter affecting parks, its provisions shall be construed as follows:

A. Any requirement or provisions of these rules and regulations relating to any act shall respectively extend to and include the causing, procuring, aiding or abetting, directly or indirectly, of such act, or the permitting or the allowing of any minor in the custody of any persons, doing any act prohibited by any provision thereof.

B. No provision hereof shall make unlawful any act necessarily performed by any officer or employee of the department of parks and recreation in line of duty or work as such, or by any person or his agents or employees, in the proper and necessary execution of the terms of any agreement with the board.

C. Any act otherwise prohibited by this chapter, provided it is not otherwise prohibited by law, shall be lawful if performed under, by virtue of and strictly in compliance with the provisions of a permit and to the extent authorized thereby.

D. This chapter is in addition to and supplements all municipal, state and federal laws and ordinances.

E. Where any park area is designated by the board so as to prohibit or permit certain activities, such designation shall be posted conspicuously. (Prior code § 30A-1-2(a))

13.24.040 Donations—Authority of board to accept—Exception.

A. The board of parks and recreation is authorized to accept or refuse gifts, donations, bequest or grants from any source, for any purpose related to the powers and duties of the board.

B. The provisions of subsection A of this section shall not apply to any gift, donation or bequest of land, such gift, donation or bequest being specifically governed by Section 11.1002 (5) (C) of the Metropolitan Charter. (Prior code § 30A-1-2.2)

Article II. Cemeteries

13.24.050 Operation and Maintenance—-Responsibilities of the board and the metropolitan historical commission.

The metropolitan board of parks and recreation shall have the responsibility of maintaining all cemeteries owned by the metropolitan government. The metropolitan historical commission shall have the responsibility of operating all cemeteries owned by the metropolitan government. The historical commission is authorized to promulgate rules and regulations concerning the operation of said cemeteries. The historical commission shall also have the responsibility of approving, prior to installation, any new markers, stones, or any other similar type structures to be placed in said cemeteries. Such approval shall be based on the appropriateness of the structure in keeping with the historic nature of the cemetery. (Ord. BL2003-96 § 1, 2004)

13.24.060 Ownership of burial plots—Authority of board—Appeal.

A. The metropolitan board of parks and recreation shall issue certificates to persons owning or claiming ownership of cemetery lots. The burden of establishing ownership to burial plots shall be on the person claiming ownership. The certificates shall authorize the burial of a named person or persons to the city cemetery and shall be issued to the person or persons only after the person applying for permission to be buried has established ownership or chain of title to the burial plot.

B. The metropolitan board of parks and recreation or its designee shall have final authority to determine ownership of burial plots. Any person aggrieved by the decision of the board shall have the right to appeal that decision to the Circuit and Chancery Courts of Davidson County. (Prior code § 30A-1-2.1(b), (c))

Article III. Regulated Activities

13.24.070 Permits—Conditions—Revocation.

A. A permit to do any act shall authorize the same only insofar as it may be performed in strict accordance with the written terms and conditions thereof. Any violation of any law, ordinance, provision of this code or rule or regulation of the board or of any other metropolitan department by the holder or the agents or employees of the holder of any permit of any term or condition thereof shall constitute grounds for revocation by the board or by its authorized representative, whose action therein shall be final.

B. In case of revocation of any permit, all money paid for or on account thereof shall, at the opinion of the board, be forfeited to and be retained by the metropolitan government; and the holder of such permit, together with his agents and employees who violated such terms and conditions, shall be jointly and severally liable to the metropolitan government for all damages and loss suffered by it in excess of any money so forfeited and retained; but neither such forfeiture and retention by the metropolitan government of the whole or any part of such money nor the recovery or collection of such damages or both shall in any manner relieve such person from liability to punishment for any violation of any law, ordinance, provision of this code or rule or regulation of the board or of any other metropolitan department. In any case where a permit issued by the board is to be exercised on park property, occupied by a museum, zoological or botanical society, the same will require approval of such society. (Prior code § 30A-1-13)

13.24.080 Hours.

No person shall, under any circumstances, enter for the purpose of remaining therein or remain in any park between the hours of eleven p.m. and one-half hour before sunrise without general or special permission from the board. (Prior code § 30A-1-28)

13.24.090 Alcoholic beverages.

A. It is unlawful for any person to possess or have under his control any beer, ale or other alcoholic beverages in any park or recreation area under the supervision or control of the board, except under such circumstances, in such places and at such times as the board may, by their rules and regulations, determine; provided, that in no case may a person possess or have under his control beer, ale or other alcoholic beverages in any playground area, swimming pool, recreation center building or comfort station, except as provided in subsection B of this section. Proof of possession of beer, ale or other alcoholic beverages in a park or recreation area under the supervi-

sion and control of the board shall be prima facie evidence of a violation of this section, and it shall be incumbent upon a person charged to prove by certified copies of the rules and regulations of the board that an exception has been granted.

B. Notwithstanding any other provisions of this code, ordinances of the metropolitan government, sections of this chapter or private acts, there is permitted the sale and consumption of beer, ale, and other alcoholic beverages in parks or recreation areas under the supervision and control of the board, subject to the following restrictions:

1. Beer may be sold and consumed only at municipally owned golf courses.

2. All provisions of metropolitan council ordinances and this code pertaining to the sale of beer at retail shall apply to the sale of beer at municipal golf courses; except, that no beer shall be sold after eight p.m. or before eight a.m. weekdays.

3. Beer and alcoholic beverages may be sold for consumption on premises of any property leased from the board of parks and recreation for use by a professional athletic team. Provided, however, alcoholic beverages may be sold for consumption only in the stadium club or restaurant or in enclosed suites and only when the facilities are being utilized for professional baseball activities. The beer permit shall be valid only when the facilities are being utilized for professional athletic team activities. All distance requirements set forth in Chapter 7.08 of the Metropolitan Code must be met by the applicant prior to issuance of the beer license.

4. Beer, ale, and other alcoholic beverages may be sold and consumed at special events in parks and recreation areas that are under the supervision and control of the Metropolitan Board of Parks and Recreation, subject to the board's approval and appropriate state or local permits. (Ord. BL2015-1102 §§ 1—3, 2015; Ord. BL2000-263 § 1, 2000; Ord. 98-1430 § 1, 1998; Ord. 97-772 § 1, 1997; Ord. 94-960 § 1, 1994; Ord. 90-1339 § 1 (30A-1), 1990; prior code § 30A-1-29)

13.24.100 Bathing and swimming.

No person shall bathe, wade or swim in any waters under the supervision and control of the board except at such times and in such places as the board may designate or maintain as bathing areas. No person shall bathe, wade or swim, or appear in any such area unless covered with a bathing suit which must be kept in place at all times, and appropriate public park attire must be worn outside of such areas. No person shall dress or undress in any park except in such bathhouses as may be designated or maintained for that purpose. (Ord. BL2012-261 § 16, 2012; prior code § 30A-1-22)

13.24.110 Boating.

A. No boat or vessel shall be laid up, stored, repaired or placed for any other purpose on park land except by permits.

B. No person shall operate a boat propelled by sail or steam, naphtha, gasoline, electric or other motor or engine, or row or paddle a row boat, canoe or raft in, on or upon any waters under the supervision and control of the board unless able to control or handle the same with safety to himself or other occupants thereof, or otherwise than in a careful or prudent manner and at a rate of speed so as not to disturb the reasonable comfort or endanger the property of another or the life and limb of any person, or in such manner as to annoy or endanger occupants of other boats. No person shall stand up in or rock any row boat or canoe.

C. No boat of any class shall land upon the shores of any park except at such locations as may be designated or maintained as landing places, except in an emergency.

D. Boating of any kind in a bathing area is forbidden.

E. All rules and regulations which have been proclaimed and adopted by the state game and fish commission as to the operation of vessels on portions of Old Hickory Lake are adopted in this section as if they were set out in the entirety.

F. The metropolitan board of parks and recreation is authorized to adopt rules and regulations concerning the use of Riverfront Park for the docking and anchoring of boats. These rules and regulations may include a rate schedule which allows for the charging of a reasonable fee for such use of the park facility, as well as a reasonable fee for the permitting of all boats docking or anchoring at Riverfront Park. The rules and regulations adopted by the board of parks and recreation may further include a procedure for their proper enforcement, provided such rules and regulations shall not be effective unless approved by the adoption of a resolution of the metropolitan county council.

1. No person shall operate a boat at Riverfront Park in violation of the rules and regulations established by the board of parks and recreation. Persons operating boats contrary to such rules and regulations shall be charged with a violation of the applicable rule.

2. Each violation of the rules and regulations concerning the docking or anchoring of boats at Riverfront Park, adopted by the board of parks and recreation and filed with the metropolitan clerk, shall constitute a separate offense. Each day any violation occurs shall also be considered as a separate offense. Each offense shall be punishable pursuant to the provisions of Section 1.01.030 of the Metropolitan Code of Laws. (Ord. 1329 § 2 (part), 1995; Amdt. 2 to Ord. 91-1560, 5/21/91; Amdt. 1 to Ord. 91-1560, 4/16/91; Ord. 91-1560 § 1, 1991; prior code § 30A-1-20)

13.24.120 Animals—Protection requirements.

A. No person shall, within any park, molest, kill, wound, trap, hunt, take, chase, shoot or throw missiles at, remove or have in his possession, any feral animal, reptile, bird, bird's nest or squirrel's nest, or remove the young of any such animal or the eggs or young of any such reptile or bird, or knowingly buy, receive, have in his possession, sell or give away any such animal, reptile, bird or egg so killed or taken.

B. No person shall feed animals in any zoo area, except unconfined squirrels, sparrows, pigeons and ducks. No person shall throw anything whatever into any animal cage or enclosure, or tease, annoy, frighten, molest or injure in any manner any animal or bird, whether confined or otherwise. (Prior code § 30A-1-18)

13.24.130 Animals—Running at large.

A. 1. No person owning or being custodian or having control of any animal shall cause or permit such animal to go at large in the park. A dog may be brought into a park; provided, that such dog shall be continuously restrained by a leash not exceeding six feet in length; except, that no dog or other animal shall be permitted in buildings or in zoos, playgrounds, bathing and other areas designated by signs as prohibited areas. In areas clearly identified by signage approved by the Board of Parks and Recreation as leash-free areas, dogs are allowed off-leash and will not be considered at large if under the control of the owner or custodian.

2. Prior to constructing a dog park or designating an off-leash area on park property, the board of parks and recreation shall notify the district councilmember for the district where the dog park and/or off-leash area is to be located. The district councilmember shall have ten days in which to provide written comments to the board regarding possible community issues or concerns associated with the location of the proposed dog park and/or off-leash area.

B. Any animal found at large may be seized and impounded or disposed of pursuant to the laws or ordinances of the state and the metropolitan government in relation to the disposal of stray animals on the highways or other public places.

C. No person having the care or charge of any dog or other animal shall permit such animal to enter or drink the water of any drinking fountain, lake or pond in any park except at places designated or maintained therefor. (Amdt. 1 to Ord. BL2013-389 § 1, 2013; Ord. BL2013-389 § 1, 2013; prior code § 30A-1-26)

13.24.140 Construction work.

A. No person or agency shall perform construction work or any kind of work incidental thereto in any park without a permit or under a contract with the board.

B. No person shall erect or maintain projections on, over or under any park without first obtaining a permit therefor from the board, and upon such terms and conditions, and without making such compensation to the metropolitan government as the board may determine. (Prior code § 30A-1-30)

13.24.150 Exhibitions and contests.

A. No person shall erect any structure, stand or platform, exhibit any dramatic performance or the performance, in whole or in part, of any interlude, tragedy, comedy, opera, ballet, play, farce, minstrelsy, dancing, entertainment, motion picture, public fair, circus, juggling, rope-walking or any other acrobatics or show of any kind or nature, or parade, drill or maneuver of any kind, or run or race any horse or other animal or being in or on a vehicle, race with another vehicle or horse whether such race is founded on any stake, bet or otherwise, or hold any athletic contest, in any park except in accordance with the rules and regulations of the board.

B. The board shall adopt, promulgate and enforce such rules and regulations consistent with the proper use and protection of the park property under its supervision and control. (Prior code § 30A-1-14)

13.24.160 Fires and lighted cigarettes.

A. No person shall kindle, build, maintain or use a fire except in fireplaces provided or in self-supporting barbecue grills or stoves in designated picnic areas or under special permit. Any fire shall be continuously under the care and direction of a competent person over twenty-one years of age from the time it is kindled until it is extinguished, and no fire shall be built within ten feet of any tree or building, or beneath the branches of any trees or in any underbrush.

B. No person shall throw away or discard any lighted match, cigar or cigarettes in any park or park-street. Cigars, cigarettes and matches shall be extinguished and deposited in a suitable container provided for the reception thereof. (Prior code § 30A-1-19)

13.24.170 Fishing.

Fishing is prohibited in any waters under the supervision and control of the board, except in such areas as are designated or maintained as fishing areas. No person shall have in his possession or take or attempt to take any fish in any such waters except in such designated areas, or at any time throw missiles at any fish, or place in such waters any piscivorous fish, poison or other substance injurious to fish. (Prior code § 30A-1-21)

13.24.180 Games.

No person shall in any park throw, cast, catch, kick or strike any baseball, golf ball, tennis ball, football, basketball, bowling ball, croquet ball, bean bag or other object, nor shall any person engage in any sport, game or competition, in places specifically prohibited. (Prior code § 30A-1-25)

13.24.190 Horses and beasts of burden.

No person shall use, lead, ride or drive a horse or other beast of burden in any park, except on designated bridle paths or along routes customarily used for access to and from bridle paths, unless otherwise authorized by the board. Driving or riding on a bridle path in a reckless manner is prohibited. Horses shall be well broken and constantly held in such control that they may easily or quickly be turned or stopped. No person shall permit any horse owned by him, or in his care or custody, to be unbridled or left unattended in any unclosed space, without being securely fastened. (Prior code § 30A-1-27)

13.24.200 Meetings, assemblies and ceremonies.

A. No person shall erect any structure, stand or platform, hold any meeting, perform any ceremony, make a speech, address or oration, or exhibit or distribute any sign, placard, notice, declaration or appeal of any kind or description, in any park except by permit issued by the board.

B. Upon application, such permit will be issued unless:

1. The use for which the permit is sought is of a private or commercial nature; or

2. The location selected is not suitable because the area is specially landscaped and planted with botanical, flower, shrub or tree exhibits; or

3. The location selected is not suitable because it is one of the specialized park use areas such as zoos, skating rinks, swimming pools, recreational, etc.; or

4. The date and time requested has previously been allocated by permit, or would obstruct and interfere substantially with park use and enjoyment by the public.

C. Whenever a permit is denied by reason of paragraphs (2), (3) or (4) of subsection B above, alternative suitable locations and dates shall be offered to the applicant. (Prior code § 30A-1-15)

13.24.210 Peddling.

No person shall, in any park or to any person in any park, exhibit, sell or offer for sale, hire, lease or let out any object or merchandise, or anything whatsoever, whether corporeal or incorporeal, tickets for entertainments or other affairs of any description included, except under a permit issued by the board. For advertising, commercial or publicity purposes, no person shall take moving pictures or photographs within the limits of any park, or buy or sell or publish the negatives thereof or the prints therefrom or exhibit such negatives or prints in public, or use pictures or photographs of any park or park structure, or perform any personal service for hire in any park, except under a permit or otherwise than in accordance with the terms of such permit. Possession of objects or merchandise in quantities, packages or containers customarily associated with peddling shall be deemed to be prima facie evidence of exhibiting or offering for sale. (Prior code § 30A-1-17)

13.24.220 Picnics.

The board is authorized to adopt, promulgate and enforce rules and regulations governing picnics or outings consistent with the proper use and protection of park property. Such authority shall include but not be limited to regulating the time, place and manner where picnics or outings may be held and may include the issuance of permits therefor. (Prior code § 30A-1-16)

13.24.230 Skating and sledding.

A. No person shall use roller skates or in-line skates in any park except at such times and upon such places as may be designated or maintained therefor, or skate, sled, walk or go upon any ice, or snowshoe or ski or tow persons on skis, sleds or skates, except at such times and upon such places as may be designated or maintained therefor.

B. No person shall, in any park, coast with handsleds, bobs, carts or other vehicles, on wheels or runners, except at such times and upon such places as may be designated or maintained therefor.

C. The operators of roller skates and in-line skates are further subject to the provisions of Metropolitan Code of Laws Chapter 12.58. (Ord. 98-1352 §§ 4, 5, 1998; prior code § 30A-1-23)

13.24.240 Model airplanes, boats and autos.

No person shall in any park engage in toy aviation, model boating or model automobiling, except at places designated or maintained therefor. (Prior code § 30A-1-24)

Article IV. Vehicles and Traffic

13.24.250 Compliance with police and park directions required.

All persons shall at all times heed and comply with traffic directions of the police officers indicated by gesture or otherwise in using parks, and shall further comply with directions on traffic signs along the routes in the parks. Directions on such traffic signs may be disregarded only on an order of a police officer. In parking spaces, all persons shall comply with the directions of a park employee. (Prior code § 30A-1-31)

13.24.260 Compliance with state and metropolitan traffic laws required.

No person shall operate a motor vehicle within any park area in violation of the laws of the state or the metropolitan government. Persons operating motor vehicles contrary to such laws shall be charged with violating the applicable statute of the state provision of this code. (Prior code § 30A-1-44)

13.24.270 Reckless driving prohibited.

No person shall, in any park, operate or drive or propel, and no owner thereof shall cause or permit to be operated, driven or propelled, any vehicle recklessly or negligently or at a speed or in such a manner as to endanger or injure persons or property. (Prior code § 30A-1-36)

13.24.280 Speed limits.

A. No person shall drive a vehicle on a street within any park at a speed greater than is reasonable and prudent under the conditions then existing. Where no special hazard exists, the maximum speed limit in all parks shall be twenty miles per hour, unless otherwise posted.

B. When official signs are posted indicating the speed limit in certain areas, it shall be unlawful for any person to drive or operate a vehicle in such area in excess of the legal speed limit as posted. (Prior code § 30A-1-32)

13.24.290 Restrictions on certain vehicles.

A. Commercial Vehicles. Vehicles constructed or adapted for or engaged in the carrying of merchandise, including samples of merchandise, trucks and trailers are prohibited from using any park except where necessary to make deliveries in such park. Whenever service roads adjoin the main roadway to a park, such vehicles shall use the service roads set apart for such use. In all cases, such vehicles shall enter such parks from the nearest street intersection or entrance, in the direction of traffic, and leave by the nearest intersecting street or exit in the direction of traffic.

B. Vehicles With Signs. Vehicles having any name, insignia or sign painted or displayed thereon for businesses or advertising purposes are prohibited in parks, except as provided in subsection A of this section. For purposes of identification, name and address only of the owner of the vehicles on the sides thereof in letters not more than two inches in height shall not be construed as being displayed for business or advertising purposes.

C. Vehicles Carrying Garbage. No garbage, ashes, manure or other offensive material shall be carried through any park. When such refuse is to be removed from premises fronting on any park, the vehicle collecting the same shall leave the park as soon as the collection has been accomplished, and by the shortest available route.

D. Omnibuses. No person shall drive or operate within any park any omnibus adapted for more than seven passengers, except under a permit. Omnibuses known as outing buses will be permitted to operate between the shortest possible routes from outside a park to deliver to or pick up its passengers from a picnic, bathing or other recreation area only if a permit to enter the park has been issued to the person sponsoring the outing, picnic, etc. Buses shall proceed over the route and to the parking space designated in the permit. Parking in the designated parking space will be limited to the time prescribed in the permit.

E. Hearses. No hearse or other vehicles carrying or used for carrying the body of a dead person shall enter or be allowed in any park, except by permit or in case of emergency. (Prior code § 30A-1-33)

13.24.300 Areas of vehicle operation restricted.

No person shall, in any park, drive or operate a vehicle within or upon a safety zone, walk, bridle path or any part of any park designated or customarily used for such purposes. No person shall ride a bicycle, velocipede or scooter in any park, except in places designated for such riding, but persons may push such machines in single file to and from such places, except on beaches. (Prior code § 30A-1-37)

13.24.310 Parking.

No person, in stopping or parking a vehicle in any park area, shall:

A. Disobey a lawful and reasonable order of a police officer or any park employee in the discharge of their duties or disobey or disregard the notices, prohibitions, instructions or directions on any park sign or parking meter, including rules and regulations of museums or zoological or botanical gardens posted on the grounds or buildings of such institutions.

B. No person shall, between eleven p.m. and one-half hour before sunrise, stop or park a vehicle in a park, except at places designated or maintained therefor. (Prior code § 30A-1-40)

13.24.320 Operation off of paved roadway prohibited—Stalled vehicles.

A. No vehicle shall be operated or driven off the improved or paved roadways of any park or parkway unless so directed by a police officer or park employee.

B. All stalled or disabled vehicles shall be removed from paved roadways in parks so as to prevent obstruction of traffic. If not so removed by the owners or operators, then such vehicles may be removed to the metropolitan government towing lot at the expense of the owners.

C. No disabled vehicle shall be permitted to remain in a park for a longer period than twenty-four hours. (Prior code § 30A-1-42)

13.24.330 Obstructing traffic prohibited.

No person shall cause or permit any vehicle to obstruct traffic in any park, or to stop such vehicle except at those places specifically designated or maintained for the purpose of stopping or parking, except in cases of emergency. (Prior code § 30A-1-39)

13.24.340 Driving instruction prohibited.

Instructions in operating automobiles or motorcycles is prohibited in parks at all times. Persons who may not lawfully operate a vehicle within the state or the metropolitan government area shall not drive or operate a vehicle within any park. (Prior code § 30A-1-38)

13.24.350 Hitchhiking prohibited.

No person shall, in any park or park street, attempt to stop or stop, by any visible or audible sign or signal, any vehicle for the purpose of soliciting a ride, except in case of emergency. (Prior code § 30A-1-35)

13.24.360 Soliciting passengers prohibited—Exceptions.

No person shall solicit passengers for any automobile, coach, taxi, omnibus or other vehicle in any park, except in such areas as may be designated therefor, and only to the extent specifically designated. All chauffeurs, drivers and attendants of such vehicles shall remain in close proximity to their vehicles while the same are unloading, awaiting or loading passengers. In no case shall cruising or soliciting of passengers in a park be permitted. (Prior code § 30A-1-34)

13.24.370 Towing and projecting articles prohibited—Exceptions.

A. No person shall cause or permit a vehicle to be towed by another vehicle in any park; except, that in case of a breakdown, a disabled vehicle may be towed to the nearest exit. Licensed towing operators may enter such park in response to a call from an owner or operator of a disabled vehicle. In all cases, such towing operators shall enter such park from the nearest street intersection or entrance, in the direction of traffic, and leave by the nearest intersecting street or exit in the direction of the traffic.

B. No person shall operate or drive in any park a vehicle containing any person or object projecting or hanging outside or on the top thereof; except, that outdoor sports and recreation equipment, including, but not limited to, skis, ski poles, fishing rods, beach chairs, beach umbrellas, tent poles, toboggans and sleds, may be carried on the rear of such vehicle or on a rack designed for that purpose and attached to the top thereof; provided, that in all cases, fastenings shall be secure and substantial and such equipment so carried shall in no case project more than twelve inches above the top or to the rear of such vehicle. (Prior code § 30A-1-41)

13.24.380 Repair work on vehicles prohibited.

No person shall, in any park, grease, lubricate or make repairs to any vehicle, except those of a minor nature, and then only in cases of emergency. (Prior code § 30A-1-43)

Article V. Unlawful Activities

13.24.390 Advertising and sponsorship on park property.

A. Except as provided in subsection B. of this section, no person shall distribute, display, transport, carry or construct any flag, banner, sign, emblem, model, device, pictorial representation or other matter within any park for advertising purposes. Nor, for the same purpose, shall any person display, by means of aircraft, kite,

balloon, aerial bomb or any other device, any flag, banner, sign or any other matter above the surface of any park for advertising purposes within the park. No person shall operate any musical instrument or drum or cause any noise to be made within any park for advertising purposes or for the purpose of attracting attention to any exhibition, performance, show or other spectacle. Nothing herein shall be construed as to prohibit any gathering or function of a political or of a religious nature.

B. The board is authorized to adopt rules and regulations to provide for sponsorships of park programs, events, projects, facilities, and sites. Such rules and regulations shall include, but not be limited to: the types of facilities, projects, events, and programs that may be sponsored; the size, number, and placement of sponsor signs; the use of logos; and the types of industries and products that are not eligible for sponsorship. The board shall have the authority to enter into sponsorship agreements with a total value not to exceed twenty-five thousand dollars. All sponsorship agreements with a total value in excess of twenty-five thousand dollars must be approved by a resolution adopted by the metropolitan council. (Ord. BL2013-543 § 1, 2013; prior code § 30A-1-6)

13.24.400 Aviation.

No person shall voluntarily bring, land or cause to descend or alight within or upon any park, any airplane, flying machine, balloon, parachute, or other apparatus for aviation. "Voluntarily," in this connection shall mean anything other than a forced landing. Any landing other than one caused by mechanical or structural failure of the aircraft or any of its parts shall be deemed to have been made voluntarily, and this shall include landings caused by error or oversight, negligence or failure to comply with FAA regulations or rulings. This section is to be construed in pari materia with Section 13.24.240 of this code. This section shall not apply to parachuting activities in conjunction with the Tennessee Women's Suffrage Centennial Celebration in Centennial Park. (Ord. BL2020-225 § 1, 2020; prior code § 30A-1-10)

13.24.410 Camping.

No person shall tent or camp or erect or maintain a tent, shelter or camp in any park, except in those areas specifically designated by the board for such purpose. (Prior code § 30A-1-11)

13.24.420 Commercial fishing.

No person shall take or attempt to take for commercial purposes any eels, fish or other forms of marine life in any park by using hand or power operated equipment, including but not limited to trawls, nets, dredges or eel combs. No person shall have in his possession in any park any hand or power operated equipment designed for or customarily used for the taking, for commercial purposes, of any form of marine life, nor, shall any person have in his possession in any park eels, fish or other form of marine life in quantities more than sufficient for personal use of the possessor, or which would violate limits set by the state game and fish commission. (Prior code § 30A-1-12)

13.24.430 Disorderly conduct.

No person shall, in any park:

A. Disobey the lawful and reasonable order of a police officer or park employee in the discharge of his duties or disobey or disregard the notices, prohibitions, instructions or directions on any park sign or parking meter, including rules and regulations of museums or zoological or botanical gardens posted on the grounds or buildings of such institutions;

B. Use threatening, abusive or insulting language;

C. Do any obscene or indecent act;

D. Throw, cast or propel stones or other missiles;

E. Solicit alms, subscriptions or contributions for any purpose;

F. Interfere with, encumber, obstruct or render dangerous any part of a park;

G. Climb or lie upon any wall, fence, shelter, seat, statue, monument or other structure;

H. Do any act tending to or amounting to a breach of peace;

I. Enter or leave any park facility except at established entrance ways or exits, or at established times;

J. Use or gain admittance to or attempt to use or gain admittance to the facilities in any park for the use of which a charge is made without paying the charge or price fixed by the board;

K. Engage in, instigate, or encourage a contention or fight, whether or not a ring or prize fight;

L. Do, aid, abet or assist in doing any act injurious to any person, animal or property within any park not specifically prohibited in this chapter;

M. Act as crier or advertiser, through the media of voice, public address system or other mechanical device, in any park or in the vicinity of the same. (Prior code § 30A-1-7)

13.24.440 Explosives, fireworks and firearms.

A. No person shall bring into or have in his possession in any park any firearms, slingshots, firecrackers, torpedoes, fireworks or other missile propelling instruments or explosives, including any substance, compound, mixture or article having properties of such a character that alone or in combination or contiguity with other

substances, mixtures, compounds or articles may propel missiles or may decompose suddenly and generate sufficient heat, sound, gas or pressure or any or all of these to produce rapid flames, combustion or noxious or dangerous odors or sounds such as to annoy any other person or to injure any person or property.

B. The prohibition against firearms in subsection A. of this section shall operate as a prohibition against the possession of a handgun by a person authorized to carry a handgun pursuant to Tennessee Code Annotated § 39-17-1351 within any park owned or operated by the metropolitan government. (Ord. BL2009-489 § 2, 2009; Prior code § 30A-1-9)

13.24.450 Gambling.

No person shall play any games of chance, sell fortunes or futures, participate in the conduct of a lottery or use any slot machine, gaming table or instrument or bring into any park or have in his possession while there any implements or devices commonly used, or intended to be used, for gambling purposes. (Prior code § 30A-1-8)

13.24.460 Polluting.

A. Littering. No person shall take into, carry through, leave in or throw, cast, lay, drop or discharge into or on any park any rubbish of any sort, including but not limited to ashes, dross, cinders, shells, fruits, fruit skins, vegetable foodstuff, paper, pasteboard, dirt, sand, oil, grease, clay, loam, stone or building rubbish, hay, straw, oats, sawdust, shavings or manufacturing trade or household waste, vehicles or parts thereof as junk, old iron or other metal or objects made therefrom, or sick, diseased or dead animals, organic refuse or other offensive matter, including swill, brine, urine, offal, fecal matter, garbage or rubbish. The placing, except in receptacles provided for refuse, or using for any other purpose than reading, of newspapers or other papers in a park is prohibited. No person shall throw, cast, lay or deposit any bottle or piece of crockery, or any glass or glassware or any part thereof, or metallic or other substance with sharp edges or projections, in any park. No person shall place household refuse and garbage in receptacles which are provided solely for newspapers and litter resulting from normal park use.

B. Spitting. No person shall in any park or park street, spit upon any walk, crossing, safety zone, structure, bridge, platform, stairway or floor of any building or structure.

C. Polluting Waters. No person shall throw, cast, lay, drop or discharge into or leave in the waters used for bathing or waters in any park or in any storm sewer or drain flowing into such waters any substance, matter or thing, liquid or solid, which may or shall result in the pollution of such waters.

D. Discharging into Sewers. No person shall discharge, directly or indirectly, into any opening or into any gutter leading into any sewer, receiving basin or drain, in or leading into any park, any gas or vapor or any substance which may form a deposit tending to choke the same, or any volatile liquid which will emit an inflammable vapor, or any steam or hot water above one hundred degrees Fahrenheit. (Prior code § 30A-1-5)

13.24.470 Hunting and trapping wildlife—Carrying firearms.

A. It is unlawful for any person to hunt or trap any of the game or fowl within any parks located within the area of the metropolitan government, which are under the jurisdiction and control of the board of park commissioners.

B. It is unlawful for any person, other than an official park policeman on duty or other law enforcing officer, to carry or discharge a firearm of any description or any BB gun or air rifle within any of the parks of the metropolitan park system, which are under the jurisdiction of the board of park commissioners. (Prior code § 29-1-46)

13.24.480 Plant life—Disturbing, removing or destroying.

A. No person shall in any park destroy, cut, break, deface, mutilate, injure, disturb, sever from the ground or remove any growing thing, including but not limited to any plant, flower, flower bed, shrub, tree, growth or any branch, stem, fruit or leaf thereof; or bring into or have in his possession in any park any tool or instrument intended to be used for the cutting thereof, or any garden or agricultural implements or tools which could be used for the removal thereof; or pile or maintain any material or debris of any kind against or upon the same; or attach any rope, cable or other contrivance thereto; or set fire to any trees, shrubs, plants, flowers, grass, plant growth or living timber; or suffer any fire upon land to extend into park lands; or hitch any horse or other animal to or leave the same standing enough to injure any tree, shrub, lawn or grass plot; or go upon any prohibited lawn, grass plot or planted area, except at such times and in such manner as the board may designate.

B. No person shall bring into or have in his possession in any park any tree, shrub or other plant or any branch, stem, flower or leaf thereof.

C. No person shall attach any posters or directional signs to trees. (Prior code § 30A-1-4)

13.24.490 Property—Removing or destroying.

No person shall injure, deface, displace, remove, fill in, raise, destroy or tamper with any drive, path, walk, bridge or approach thereto; take up, remove or carry away any asphalt, curb, flagstone, rock, stone, gravel, sand, clay or earth; make any excavation of any kind, name or nature; harvest, cut, injure or remove any ice; injure, mutilate, deface, displace, remove or destroy any wall, fence, shelter, seat, statue, monument or other structure, building, post, railing, bench, seat, platform, stand, tree guard, telephone, telegraph, pipe or main for conducting gas, water or wires or any hydrant, sewer, drain, pipe, main, receiving basin, covering, manhole or vent forming a part thereof, or any appurtenance or appendage conforming therewith, or any other property or equipment, real or personal, owned by the metropolitan government or under the supervision or control of the board or appertaining to the creation, government, use or maintenance of any park; or injure, deface, displace, remove or destroy any sign, notice, inscription, post or monument erected or marked for any purpose, or any milestone, danger sign or signal, guide sign or post, or any signaling device, sanctioned, installed or placed by the board, by the police department or traffic and parking commission of the metropolitan government within any park for the purpose of directing, restricting or regulating traffic, establishing zones or giving information or directions to the public; or interfere with any lamp, lamppost, gas or electric light apparatus or light, or extinguish the light therein, or attach string, adjust or suspend any wires or similar objects on or over any part of any park. (Prior code § 30A-1-3)

Chapter 13.26

NAMING OF PUBLIC BUILDINGS

Sections:

13.26.010	**Ordinance required to name public buildings.**
13.26.020	**Other requirements.**

13.26.010 Ordinance required to name public buildings.

No building or structure of the metropolitan government may be named except pursuant to an ordinance duly adopted by the metropolitan county council. (Ord. 94-1052 § 1, 1994)

13.26.020 Other requirements.

A. Any ordinance filed with the council seeking to name a public building or structure after a person or company shall have attached biographical information of the person to be so honored and if a company, information relating to its history and contribution to the metropolitan government. Any ordinance filed seeking to name a building or structure under the operation or control of a board or commission of the metropolitan government shall have a recommendation of such board or commission prior to its adoption on second reading by the council.

B. Upon the filing of any ordinance seeking to rename, demolish, or sell a public building previously named after a person, if the name designation provided under subsection A. will not be preserved, such ordinance must be forwarded to the metropolitan historical commission for review as to the historical significance of the person for which the building was named. The historical commission shall provide a written report to the metropolitan council prior to the consideration of the ordinance on second reading including biographical information of the person for which the building was named and their contribution to the metropolitan government, as well as whether the person honored should be recognized by the metropolitan government in another way such as by placing a historical marker after the building named for them is renamed, demolished, or sold. No action shall be taken by the council on second reading until the report from the historical commission has been submitted to the council or sixty days has passed from the date the ordinance was forwarded by the metropolitan clerk to the historical commission. (Amdt. 1 to Ord. BL2021-783 § 1, 2021; Ord. BL2021-783 § 1, 2021; Ord. 94-1052 § 2, 1994)

Chapter 13.27

DYNAMIC SYMBOL OF ACCESS

Sections:

13.27.010	**Dynamic symbol of access required.**
13.27.020	**Effective date.**

13.27.010 Dynamic symbol of access required.

A. The director of the department of general services shall promulgate the necessary rules for the purpose of designating the symbol of access to be used for buildings owned or operated by the metropolitan government on signage indicating access and parking for persons with disabilities.

B. The director of the department of public works shall promulgate the necessary rules for the purpose of designating the symbol of access to be used within public rights-of-way maintained by the metropolitan government on signage indicating access and parking for persons with disabilities.

C. The symbol must depict a logo with a dynamic character leaning forward with a sense of movement, be readily identifiable, and be simply designed with no secondary meaning. The symbol must signify equivalent facilitation and accessibility as the previously used international symbol of access. The symbol must be depicted in substantially the following form:

D. The symbol must be accompanied by the adjective "Accessible," when appropriate for the signage, and must be used to designate every point of access for persons with disabilities for all metropolitan government buildings, structures, or real property constructed or purchased on or after July 1, 2020. For existing metropolitan government buildings, structures, real property, and rights-of-way, signage indicating access for persons with disabilities must conform to the requirements of this section when:

1. The signage is replaced or repaired;

2. When the area of an existing metropolitan government building, structure, or real property containing signage is renovated; or

3. When new parking areas are designated on metropolitan government property or within the public right-of-way. (Ord. BL2020-116 § 1, 2020)

13.27.020 Effective date.

The provisions of this chapter shall take effect July 1, 2020. (Ord. BL2020-116 § 1, 2020)

Division II. Urban Services District Regulations

Chapter 13.28

HOUSE NUMBERING SYSTEM

Sections:

13.28.010	**West of Cumberland River.**
13.28.020	**East of Cumberland River.**
13.28.030	**Allotment of numbers—Display required when.**
13.28.040	**Removing or changing numbers prohibited.**

13.28.010 West of Cumberland River.

The following system for the numbering of houses and lots in the urban services district west of the Cumberland River is adopted:

A. Broadway, beginning at the west bank of the river, continuing west at West End Avenue to the boundary of the urban services district, shall be the dividing line north and south. The Cumberland River shall be the dividing line east and west.

B. Even numbers shall be placed on the north and east sides of streets and odd numbers on the south and west sides of streets on the west side of Cumberland River. (Prior code § 38-2-23)

13.28.020 East of Cumberland River.

The following system for the numbering of houses and lots in the urban services district east of the Cumberland River is hereby adopted:

A. Main Street from Cumberland River to Tenth Street, East Lindsley Street from Tenth Street to Eleventh Street, at the intersection of Woodland Street and Woodland Street from Eleventh Street to the boundary of the urban services district shall be the dividing line north and south.

B. Even numbers shall be placed on the south and west sides of streets and odd numbers on the north and east sides of streets. (Prior code § 38-2-24)

13.28.030 Allotment of numbers—Display required when.

A. The director of public works is authorized and empowered to allot house numbers for all houses abutting on streets in the urban services district, and the owners of such houses shall provide themselves with numbers allotted to them and with number plates of the general design and pattern approved by the director of public works and shall cause the same to be placed upon their houses whenever such houses are unnumbered or are numbered incorrectly.

B. The director of public works shall require street numbers to be displayed on all commercial businesses in Metropolitan Nashville, Davidson County. The size and design of the street numbers shall be approved by the director of public works, who is empowered to establish rules and regulations regarding the disposition of street numbers to ensure that the street number is visible from the street. (Prior code § 38-2-25)

13.28.040 Removing or changing numbers prohibited.

It is unlawful to take down, deface, destroy, injure or change any of the numbers placed on buildings under the provisions of this chapter, or to use or permit to be kept upon any building any different number than is authorized by the director of public works. (Prior code § 38-2-26)

Chapter 13.32

STREET AND SIDEWALK REGULATIONS

Sections:

13.32.010	**New streets—Designation and naming.**
13.32.020	**Ditch digging—Permit required.**
13.32.030	**Repair and maintenance—Owner responsibility—Hold harmless agreement.**
13.32.040	**Snow and ice removal—Owner responsibility.**
13.32.050	**Private snow plow service permits.**
13.32.060	**Reserved.**
13.32.070	**Reserved.**
13.32.080	**Encroachments prohibited—Notice to abate.**
13.32.100	**Removal of obstructions—Offender's responsibility.**
13.32.105	**Impoundment and disposal.**
13.32.110	**Public nuisances prohibited.**
13.32.120	**Barbed wire fences prohibited—Exceptions.**
13.32.130	**Reserved.**
13.32.140	**Dumping fires or burning cinders prohibited.**
13.32.150	**Burning leaves or trash prohibited.**
13.32.160	**Curb service of food or merchandise—Regulations.**
13.32.165	**Sidewalk cafe dining facilities.**
13.32.166	**Parklet and streatery.**
13.32.170	**Gratings or cellar doors opening onto sidewalks—Restrictions.**
13.32.190	**Depositing wood, coal or lumber on sidewalks.**
13.32.200	**Throwing articles from houses into street.**
13.32.210	**Injuring trees prohibited.**
13.32.220	**Washing vehicles on streets prohibited.**

13.32.010 New streets—Designation and naming.

A. All streets running north and south that may be opened or that may be brought into the urban services district shall be numbered consecutively, commencing with the number following that number which has already been given the last street that has been thus numbered. Of these streets herein referred to, those on the west side of the river shall be called "avenues," and those on the east side of the river shall be called "streets." Such streets and avenues shall be called "North" or "South," according as they are north or south of Main Street on the east side of the river, and according as they are north or south of Broadway and West End.

B. Such streets and avenues shall be marked by erecting posts and signs with the names thereof upon them, of some durable material or enameled steel, and shall be painted a durable color. It shall be unlawful for any person to deface such signs or posts in any particular. (Prior code § 38-2-19)

13.32.020 Ditch digging—Permit required.

No person shall make, dig or throw up any ditch, drain, trench, gutter, gully or canal in, through or across any of the streets, lanes or alleys of the urban services district without first obtaining a permit for such purpose from the director of public works, specifying the time when and place where the same is to be done. (Prior code § 38-2-22)

13.32.030 Repair and maintenance—Owner responsibility—Hold harmless agreement.

A. It shall be the duty of both the owner and the person in possession of any property that adjoins a street, alley or sidewalk in the urban services district to keep and maintain that portion thereof which immediately adjoins and lies along the margin of such street, alley or sidewalk free from dangerous holes, declivities, excavations, obstructions and other defects that constitute a hazard to persons lawfully and properly using the street, alley or sidewalk. Such owner and such person in possession of such property shall erect such fences, rails or barriers along such street, alley or sidewalk as may be necessary to prevent such excavations, holes, declivities, obstructions and other defects from constituting a hazard to persons lawfully and properly using the street, alley or sidewalk. Such owner and such person in possession of such property shall also upon notice from the director of public works, place and securely fasten red warning lights at and along such street, alley or sidewalk; and keep the same burning during the entire night, and shall keep such lights burning each night until such dangerous condition has ceased to exist.

B. The owner and person in possession of such property adjoining a street, alley or sidewalk shall indemnify and hold harmless the metropolitan government from any and all damages, losses, claims, charges,

costs, suits, and actions of every nature and description that may be brought against the metropolitan government as a result of any injury or damage to persons or property sustained by reason of the violation of or failure to comply with this section or any part thereof, and such owner or person in possession of such property shall be liable over to the metropolitan government. The metropolitan government may recover from such owner or person in possession the full amount of its loss and damage, including all court costs, irrespective of whether there was a joint liability and a joint judgment against the metropolitan government and such owner or person in possession of such property. (Prior code § 38-2-7)

13.32.040 Snow and ice removal—Owner responsibility.

It shall be the duty of every owner or proprietor of any dwelling house, business house or other house abutting on any public street, square or avenue within the fire district to remove or cause to be removed from the sidewalk immediately in front of his premises all snow and ice which may each day accumulate thereon. (Prior code § 38-2-9)

13.32.050 Private snow plow service permits.

A. [Definitions.] As used in this chapter, the following definitions apply:

"Director" means the director of the metropolitan government department of public works or his designee.

"Homeowners association" means a formal legal entity comprised of property owners within a single subdivision, development or common area with the legal authority to enforce codes, covenants and restrictions addressing common property restrictions, building, maintenance and safety issues on behalf of and upon its members.

"Neighborhood association" means a voluntary organization comprised of residents, property owners and/or business owners organized to improve and maintain the quality of life within a neighborhood through organized activities, communications, and advocacy on behalf of its residents or property owners.

"Obstruction" means any structure, embankment, device, item or thing placed or existing within the right-of-way of the metropolitan government which hinders, impedes or affects the flow of traffic, whether such obstruction is permanent or temporary.

"Person" means any and all persons, natural or artificial, including but not limited to any individual, firm, association, partnership or corporation.

"Private snow plow service" means the scraping, removal or displacement of snow and/or ice from any street, road, alley, sidewalk or other public way by automated means by any person other than the Metropolitan Government of Nashville and Davidson County.

B. Permit Required. No person shall provide private snow plow service or otherwise remove snow and/or ice by automated means from any street, road, alley, sidewalk or other public way, nor shall any person close or occupy any portion of the public right-of-way by means of or in connection with any snow plow services or obstruction within the jurisdiction of the metropolitan government without having first applied for and obtained from the director a permit to do so.

C. Permit Requirements—Approval, Bond, and Insurance.

1. A permit authorizing private snow plow service may be issued only upon submission by the applicant of prior written approval from at least one of the following:

a. The homeowners' association representing the location where private snow plow services are sought;

b. The neighborhood association representing the location where private snow plow services are sought;

c. The district member(s) of the metropolitan council representing the area where private snow plow services are sought; or

d. At least eighty percent of the occupant(s) of the properties abutting the street, road, alley, sidewalk or other public way in which snow plow services are sought.

For the purposes of this subsection, the written approval shall include the following information: (1) the name, address, telephone number and email address of the approving party; (2) the date upon which approval was granted; (3) the name, address, telephone number and email address of a contact person representing the applicant; (4) the signature of the applicant or applicant's representative; (5) the signature(s) of the approving party; and (5) such other information as may be required by the director.

2. No private snow plow service permit shall be issued to any person until such person shall first have posted a payment and performance bond satisfactory to the director. The amount of the bond shall be forty thousand dollars, unless otherwise established by the director.

3. It shall be the responsibility of the applicant to furnish to the department of codes administration a permit bond in the amount of forty thousand dollars, conditioned to conform to the requirements of this chapter and all applicable laws, ordinances, rules and regulations of the metropolitan government relating to the work for which a permit is required, or for work performed by the principal for which a permit should have been obtained; and to indemnify the metropolitan

government and property owners against any and all loss by reason of the failure of such person to comply with such laws, ordinances, rules and regulations. Such bond shall be continuous and may not be canceled without at least ten days' prior notice, in writing, to the director of codes administration. The liability of the surety shall continue to attach to work performed pursuant to any permit issued prior to the termination date of the bond even if the non-complying act should occur after the termination date of the bond. The liability of the surety for any and all claims, suits or action under this bond shall not exceed the bond penalty of forty thousand dollars. The bond shall be issued by a U.S. Treasury-listed corporate surety or a Tennessee domestic insurance company on forms provided by the department of codes administration.

4. It shall be the responsibility of the applicant to furnish a current certificate of public liability insurance issued by a Tennessee-licensed company which provides a minimum of one million dollars per occurrence. The certificate of insurance shall name the metropolitan government as an additional insured and may not be canceled without at least thirty days' prior notice, in writing, to the director.

D. Permit Issuance, Cost and Duration.

1. Permits shall be issued by the director to any person qualified under Section 13.32.050C. of the Metropolitan Code, meeting all other requirements of this chapter, and upon receipt of the appropriate permit fee.

2. The fee for private snow plow service permits shall be fifty-five dollars each. Upon issuance, each permit shall remain valid and effective for a period of three years.

E. Services Provided are Solely at the Expense of the Requesting Party. All private snow plow services authorized under this section shall be provided solely at the expense of the requesting party. In no event shall the Metropolitan Government of Nashville and Davidson County be held responsible for the costs or expenses associated with the provision of private snow plow services.

F. Compliance with Traffic and Safety Laws and Regulations. All private snow plow services provided by a permitee will be the responsibility of the permittee. The snow plow service activities shall be in accord with, and shall strictly comply with, the Metropolitan Code of Laws, all state and federal traffic and safety laws and regulations, and the specifications of the department of public works. All snow plow service activities shall be subject to the approval of the director of public works.

G. Repair or Replacement of Sidewalks, Pavements and Other Special Structures Required—Specifications.

1. Every person providing private snow plow services on any street, road, alley, sidewalk or other public way within the jurisdiction of the metropolitan government shall repair and/or replace all curbs, gutters, sidewalks, or other special structures that are disturbed, displaced or removed in the course of providing such services, solely at the expense of the person providing private snow plow services and in accordance with the standard requirements and specifications of the department of public works. (No additional permit fee shall be required for such replacement.)

2. Pavements or other street surfacing—other than curbs, gutters and sidewalks—removed or damaged as a result of private snow plow services on any street, road, alley or other public way within the jurisdiction of the metropolitan government shall be replaced by and at the expense of the person providing such services. The pavement replacement shall be performed by a reputable paving contractor within thirty days of the removal or damage, or within such shorter or longer time as the director may require. All pavement replacement under this subsection shall be made in accordance with the requirements and specifications of the department of public works and shall only be performed during the presence of inspection personnel of the department of public works.

H. Public Way Closure and Traffic-Control Devices. In connection with the issuance of a permit under this chapter, the director shall have the authority to close temporarily or to authorize temporary closure of any street, road, alley, sidewalk, or any other public way or part thereof when, in the director's opinion, the closing is necessary. No public way shall be closed for any purpose without first obtaining a permit from the director.

In connection with the issuance of a permit under this chapter, the director may install, or may require installation and maintenance of, traffic-control devices. Such devices and their placement shall meet the requirements of the latest edition of the Manual for Uniform Traffic Control Devices (MUTCD).

I. Penalty for Violation. In addition to any other penalty imposed for failure to obtain a permit required under this chapter, if commenced before a permit is issued, the permit fees or any permit subsequently issued for that activity shall be tripled.

J. Regulations. The director shall have authority, with the approval of the mayor, to implement this chapter by appropriate rules and regulations. (Amdt. 1 to Ord. BL2016-206 § 1, 2016; Ord. BL2016-206 § 1, 2016)

Editor's note—Prior to reenactment by Ord. BL2016-206, Ord. BL2012-261, § 17, adopted Oct. 16, 2012, repealed § 13.32.050, which pertained to flagpole socket regulations—Contract authorization—Approved locations and derived from prior Code § 38-2-16.

13.32.060 Reserved.

Editor's note—Ord. BL2012-261, § 17, adopted Oct. 16, 2012, repealed § 13.32.060, which pertained to flagpole socket contract—Cancellation and derived from prior Code § 38-2-17.

13.32.070 Reserved.

Editor's note—Ord. BL2012-261, § 17, adopted Oct. 16, 2012, repealed § 13.32.070, which pertained to use of flags, poles and fixtures—Requirements and derived from prior Code § 38-2-18.

13.32.080 Encroachments prohibited—Notice to abate.

It is unlawful for any person who owns, or, as agent of an owner, is in control of any property in the urban services district, to have, maintain or hereafter cause to be erected, within or upon any street, alley, highway or wharf or any part thereof, any house, fence, wall or building. Any person who has innocently erected such an encroachment shall be entitled to receive written notice of such encroachment from the director of public works and shall be given ten days from the receipt of such notice in which to remove such encroachment. (Prior code § 38-2-4)

13.32.100 Removal of obstructions—Offender's responsibility.

A. No person or other entity shall permit any rocks, wood, lumber, abandoned property or other obstruction whatsoever, other than a legally parked motor vehicle, to remain on the public square or any street, public right-of-way, sidewalk, or alley. Officers of the metropolitan police department, Nashville Fire Department, and Nashville Department of Transportation and Multimodal Infrastructure (NDOT) shall cause the prompt removal of such material or obstruction, whether by the person or entity responsible for the obstruction or otherwise.

B. In addition to any penalty imposed for the violation of this section, the person or entity offending shall be liable to pay the reasonable expense of removing and disposing of such material or obstruction, together with all costs of storage and administrative costs.

C. For purposes of this section, abandoned property shall mean personal property, other than a motor vehicle, that is not the property of the metropolitan government, that is not the subject of an encroachment permit or other lawful metro permit, that does not consist of utility infrastructure and that is placed in a public place or public right-of-way:

i. For at least forty-eight continuous hours,

ii. In a manner that interferes with vehicular or pedestrian traffic or otherwise creates a reasonable safety concern, or

iii. The owner of the property is arrested for violation of Tenn. Code Ann. Sections 39-17-307 or 62-30-101 et seq., or any other applicable criminal law. (Ord. BL2023-1647 § 3, 2023; prior code § 38-2-6)

13.32.105 Impoundment and disposal.

A. Property removed from the public right-of-way or other publicly owned location pursuant to Section 13.32.100 shall be taken to a place of impoundment designated by the chief of police or director of NDOT. The director of NDOT shall have authority to make regulations to address the procedure for property removal, forfeiture, sale, and redemption.

B. If present at the time of the removal, the owner of property to be removed from the public right-of-way shall be given a receipt, which shall include the following information:

i. A complete list of the removed items;

ii. A complete list of the items disposed of at the time of the removal;

iii. The impoundment location, including operating hours; and

iv. The name, title and contact information of the official authorizing the removal and impoundment.

If not present at the time of the removal, reasonable efforts shall be made to notify the owner of any removed property and provide the owner with a receipt as described hereinabove. In no event shall perishable items be impounded; any such perishable items shall be immediately disposed of for health reasons at the time of impoundment. The metropolitan government shall retain a copy of all receipts and notices provided to owners whose property has been removed, destroyed, or impounded.

C. The metropolitan government shall have no liability to the owner of the property for the disposal of or damage resulting from the removal or storage of the removed property. An owner seeking to recover removed property shall pay the metropolitan government's reasonable costs incurred in removal and storage at the time of recovery. Removed property remaining unclaimed after ten business days shall be deemed forfeited and may be disposed of by sale or otherwise. (Ord. BL2023-1647 § 2, 2023)

13.32.110 Public nuisances prohibited.

No person shall take, carry, expose or place in or upon any street, alley or sidewalk any substance, animal or thing which is or is likely to become a public nuisance, or which shall imperil the life, health or safety of any person who is or may properly be in or on such street, alley or sidewalk or which, through the giving off of odors or noises, shall be or become offensive, or injuriously affect the comfort and safety of persons using such street, alley or sidewalk. (Prior code § 38-2-21)

13.32.120 Barbed wire fences prohibited—Exceptions.

A. It is unlawful for any person to erect a fence along any sidewalk in the urban services district with barbed wire or razor wire, or a fence of any kind on which barbed wire or razor wire is used; provided, that this section shall not be construed to prevent anyone from stretching a single strand of barbed wire on the top of any fence over seven feet high to prevent anyone from climbing over the same.

B. All fences described in subsection A are also declared to be nuisances and dangerous to the public, and it shall be the duty of the owner of such fence to remove the same within five days after due notice from the director of public works. (Ord. BL2004-427 § 1, 2004; prior code § 38-2-15)

13.32.130 Reserved.

Editor's note—Ord. BL2012-261, § 18, adopted Oct. 16, 2012, repealed § 13.32.130, which pertained to dragging timber prohibited and derived from prior Code § 38-2-13.

13.32.140 Dumping fires or burning cinders prohibited.

It is unlawful to place, make or dump any fire or burning cinders upon any street, alley, public way or square, the surface paving of which may be injured, damaged or deteriorated by reason thereof, except for the purpose of preparing, removing, reconstructing or repairing such paving. (Prior code § 38-2-12)

13.32.150 Burning leaves or trash prohibited.

It is unlawful to burn any leaves, trash, refuse matter or other inflammable material on any sidewalk or pavement or in any street within the urban services district. (Prior code § 38-2-11)

13.32.160 Curb service of food or merchandise—Regulations.

The following rules and regulations with reference to the serving of food or drinks and the sale of other merchandise to passengers in vehicles in or near streets shall be enforced by all police officers and it shall be unlawful for any storekeeper, merchant or purveyor of food, drinks, service or merchandise to violate any of the following regulations:

A. Automobiles shall not encroach on spaces set aside for pedestrian traffic and shall not park so as to interfere with the use of sidewalks or pedestrian traffic.

B. All vehicles, the occupants of which desire service at the curb, shall be parked parallel with the curb, facing the direction of traffic on the side of the street on which the store is located.

C. Parking shall be permitted only within the property lines of the store at which service is sought, where space is available.

D. Loud or continuous blowing of horns is prohibited.

E. Containers, bottles, straws, tissue napkins or trash shall not be thrown into the street or gutter.

F. Driveways across sidewalks into drive-in stations on private property are permitted, subject to the approval of plans by the director of public works. (Prior code § 38-2-20)

13.32.165 Sidewalk cafe dining facilities.

A. Sidewalk cafe dining facilities are authorized to be located within the public right-of-way, not including parking, unloading/loading, and travel lanes, subject to the rules and regulations of subsection D. Revisions to said regulations shall require the approval of the director of the Nashville Department of Transportation and Multimodal Infrastructure ("NDOT") and the approval of the metropolitan council by ordinance.

B. Any person who maintains and/or operates any sidewalk cafe dining facility within any public right-of-way without first obtaining a permit from the metropolitan government shall be deemed guilty of a misdemeanor and upon conviction thereof shall be fined not to exceed the amount specified at Section 1.01.030 of the Metropolitan Code, and each day that such violation continues to occur shall be deemed a separate offense.

C. Any person making application for a permit to operate a sidewalk cafe dining facility shall, in addition to filing the appropriate application as required by NDOT, pay to the metropolitan government a nonrefundable fee of one hundred dollars to cover the cost of processing such application and an annual fee per square foot for right-of-way use at a rate determined by NDOT. If a renewal of the permit is desired, an application for renewal must be made at least thirty days prior to the expiration of the existing permit and must be accompanied by the nonrefundable fee of one hundred dollar as well as the annual fee per square foot for right-of-way use.

D. Rules and Regulations.

1. Operation of sidewalk cafe dining facilities shall require a permit from NDOT. Such permits shall be available throughout the jurisdiction of Metropolitan Nashville and Davidson County. For the purposes of this section, a "sidewalk cafe dining facility" means an area adjacent to a street level restaurant or equivalent eating or dining establishment, located within the public right-of-way, not including parking, unloading/loading, and travel lanes, and used for dining, drinking and related activities. A sidewalk cafe dining facility may provide waiter or waitress services or may be self-service. Compliance with sidewalk cafe dining guidelines may be required as part of the permit process.

2. All permits issued pursuant to this section shall be for a period of one year, renewable annually, and must be posted on the premises. If an applicant is not the owner of the property abutting the requested right-of-way, such application must have written approval by the owner of said property. Both the applicant and the owner of the abutting property, if different from the applicant, are responsible for any damage to the public right-of-way arising out of operation of the sidewalk cafe dining facility, and must immediately restore the right-of-way upon request to the specifications of the director of NDOT.

3. Each application must be accompanied by a plan showing all proposed activities to be conducted upon the public right-of-way not including the parking, unloading/loading or travel lane, etc. and all items proposed to be placed upon said right-of-way. A description of the area proposed to be encumbered must accompany each application. No stakes, rods, support poles or holes for whatever purpose are allowed to be drilled in the public right-of-way. No permanent fixtures are permitted in the public right-of-way. No outside sandwich board signs are permitted in the right of way. The right-of-way used for sidewalk cafe must be maintained in a safe manner and disability accessible and free of pedestrian hazards.

4. The plan so presented at the time application is sought must include every activity proposed to be conducted upon the public right-of-way. For example, if food service is planned for the sidewalk area, the application must so state. If any entertainment or music is contemplated, the application must disclose this in detail. Anything not specifically included in an application will be considered to be excluded.

5. A minimum of five feet of sidewalk must be left clear for pedestrian traffic (measured from the edge of the encroachment to the curb or to any other obstruction, such as parking meters, signposts, etc.) and placement must not obstruct ingress or egress from vehicles parked at the curb. In cases where the sidewalk does not allow for five feet of sidewalk clearance, the applicant must demonstrate via a diagram that a minimum of four feet of sidewalk clearance will be maintained.

6. The area surrounding the sidewalk cafe dining location must be kept completely free of debris, trash or litter of any type. Such cleanup and maintenance shall be the joint responsibility of the applicant and the property owner, if different from the applicant.

7. Sidewalk cafe dining facilities must not obstruct any doorway and must have thirty-six inches minimum access opening from the edge of the encroachment.

8. The applicant shall hold harmless and indemnify the metropolitan government from any and all liability resulting from personal injury or property damage resulting in any way from the operation of sidewalk cafe facilities, including court costs and attorneys' fees. Proof of insurance in an amount of not less than one million dollars in a form acceptable to the metropolitan government from a company licensed to do business in the State of Tennessee must be furnished with the application.

9. The sale and consumption of beer and other alcoholic beverages at sidewalk cafe locations is permitted if the requirements of all pertinent laws, rules and regulations for the sale and consumption of beer and/or alcoholic beverages have been met prior to the filing of any application sought pursuant to these regulations. If beer and other alcoholic beverages are served at the sidewalk cafe, the applicant must provide proof of liquor liability insurance in an amount of not less than one million dollars in a form acceptable to the metropolitan government from a company licensed to do business in the State of Tennessee must be furnished with the application.

10. Food preparation on the public right-of-way is prohibited.

11. Any permit issued pursuant to this section may be immediately canceled or suspended by the director of NDOT for any reason and at any time. The metropolitan government shall have the right, at any time and for any reason, with or without notice, to remove from the public right-of-way any and all items placed thereon pursuant to any permit issued under this section, and to dispose of same in any manner without liability to the permit holder or to any other party; provided, however, that the director of NDOT shall use best efforts to provide at least twenty-four hours' notice to any permit holder whose operations will be affected by the provisions of this section.

12. All permits issued pursuant to this section shall be kept and displayed in a conspicuous manner that is visible to the public in the sidewalk face dining facility for which it is issued, such as displayed in an outward

facing window. (Ord. BL2025-957 §§ 1, 2, 2025; Amdt. 1 to Ord. BL2022-1405 § 1, 2022; Ord. BL2022-1405 § 1, 2022; Ord. BL2020-403 § 1, 2020; Ord. BL2020-403 § 1, 2020; Ord. 93-593, 1993)

13.32.166 Parklet and streatery.

A. Definitions:

1. "Parklet" means a small public gathering space, occupying up to two parking stalls or a loading zone, as applicable, on the public street, and treated in all respects as a public sidewalk, but the facilities of which are privately owned and maintained.

2. "Streatery" means up to two parking stalls or a loading zone, as applicable, used either as an extension of, or a stand-alone sidewalk cafe, connected visually to, and for use by patrons of, a nearby restaurant or bar and service at which is subject to all terms and conditions of the nearby restaurant or bar's food service permits and alcohol licenses.

B. Parklet/streatery facilities are authorized to be located within the area of the public right-of-way (ROW) occupied by parking spaces, and unloading/loading zones, subject to Metro Code Title 12 and related regulations. Revisions in said regulations shall require the approval of the director of the Nashville Department of Transportation and Multimodal Infrastructure ("NDOT") and the approval of the metropolitan council by resolution.

C. Any person who maintains and/or operates any parklets or streatery facility withing the public right-of-way without obtaining a permit from the metropolitan government shall be deemed guilty of a misdemeanor and upon conviction thereof shall be subjected to a fine not to exceed the amount specified in Section 1.01.030 of the Metropolitan Code, and each day that such violation continues to occur shall be deemed a separate offense.

D. Any person making application for a permit to operate a parklet/streatery facility, which are available with one-year terms, shall, in addition to filing the appropriate application as required by NDOT, pay to the metropolitan government a nonrefundable fee of one hundred fifty dollars to cover the cost of processing such application. With regard to a streatery, the permittee shall also pay an additional annual fee per based on the lost revenue from the metered parking spaces occupied by the streatery, or a lower rate, per non-metered parking space occupied thereby, as determined by NDOT. If a renewal of the permit is desired, an application for renewal must be made at least thirty days prior to the expiration of the existing permit and must be accompanied by the non-refundable fee of one hundred fifty dollars as well as, if applicable, the annual fee per metered and non-metered spaces occupied by the right-of-way use.

E. Rules and Regulations.

1. Site Plan. All applicants shall provide a plan with their application form that clearly includes and indicates all the following information:

a. The footprint of the proposed parklet/streatery, including sufficient detailed information to illustrate the design elements on either end of the proposed parklet/streatery.

b. All property lines, right-of-way lines, sidewalk width, parklet/streatery length and width, existing parking stalls, and all surface obstructions within fifteen feet of the occupied area (e.g., fire hydrants, streetlights, parking meters, street trees, utility access covers).

c. The number(s) on all parking meters that are to be removed must also be included in all drawings. These numbers are generally posted on the meter.

d. Provide as much detail as possible to aid in metro's review of the application.

2. Parklet/Streatery Programming. Indicate what type of elements the applicant is proposing on the parklet/streatery (e.g., tables and chairs, benches, landscaping, bike parking, etc.) and provide a maintenance plan for the parklet/streatery. This should include information such as whether the elements will be removed from the public right of way each day, seasonal management, and management during inclement weather.

3. Support. A letter from fronting property owners is required. Each applicant must adequately and robustly involve the surrounding community in the development of the proposal by involving neighbors and tenants of the subject property, and any existing merchant or neighborhood groups. The applicant must provide reliable and verifiable documentation of this support in the form of letters, petitions, emails, etc.

4. Indemnity and Hold Harmless Statement. Each applicant shall provide a signed agreement to defend, indemnify, save, and hold harmless the city and all its officer, agents, or employees from any liability for damages resulting from any and all operations under the permit in a form approved by the metropolitan attorney. Proof of insurance, in an amount of not less than one million dollars, in a form acceptable to the metropolitan government, from a company licensed to do business in the State of Tennessee, must be furnished with the application.

5. Departmental Review. An interdepartmental committee (planning, department of transportation and multimodal infrastructure (NDOT), beer board, water, police,

fire) will review applications, on a first-come-first-served basis, to ensure that the concept application meets program criteria.

6. Compliance with Laws and Insurance. The sale and consumption of beer and other alcoholic beverages at streatery facilities is permitted if the requirements of all pertinent laws, rules and regulations for the sale and consumption of beer and/or alcoholic beverages have been met prior to the filing of any application sought pursuant to these regulations. If beer and other alcoholic beverages are served at the streatery, the applicant must provide proof of liquor liability insurance in an amount of not less than one million dollars, in a form acceptable to the metropolitan government, from a company licensed to do business in the state of Tennessee. Furthermore, in the case of a streatery, where the applicant is a restaurant or bar who intends to serve food in the streatery area, all state and local health laws and regulations for food service shall be applicable to the area of the streatery, too.

7. Permit Application. For those applicants with an accepted conceptual application; the next step is to submit a construction permit application and fully detailed site plan, including but not limited to items such as cross sections, elevations, structural details, safety treatments, existing utilities, and maintenance of traffic plans. Metro staff will work with the applicant in a collaborative fashion during this period to ensure that the parklet/streatery design is appropriate and that the final drawings produced meet requirements.

8. Construction Permit Approval. Within five business days from submittal of a final plan, if it is determined by the NDOT that the application satisfies all policy requirements and the applicant has paid all necessary fees, NDOT will grant final approval and issue a permit, taking into consideration the recommendation of the interdepartmental committee.

9. Construct Parklet/Streatery. Upon permit issuance and as a condition of permit approval, applicants are required to meet with NDOT no less than ten days before beginning any site work. Installation of the parklet must be completed within two weeks of permit issuance.

10. Other Permits. In conjunction with the parklet/streatery right-of-way permit, the applicant is required to obtain any other applicable permits that may be required by other agencies.

11. Parklet/Streatery Removal.

a. The permittee, at the permittee's sole cost, shall be responsible for removal of the parklet/streatery and restoring the right of way to its original condition upon the occurrence of one or more of the following events:

i. The cessation of use,

ii. Failure to comply with permit conditions or other legal requirements, or

iii. The parklet/streatery poses a dangerous condition or threat to life or property.

b. Metro may remove the parklet for any of the following reasons:

i. Failure to maintain the parklet,

ii. Violation of policies and regulations adopted for this program by NDOT,

iii. Violation of the permit,

iv. Modifications not previously approved by metro,

v. When the parklet/streatery encroachment causes a dangerous condition or threat of danger to life or property as determined by the director of NDOT. This includes but is not limited to, where:

(A) The parklet/streatery is encroaching into a travel lane or bike lane;

(B) The parklet/streatery has lost structural integrity;

(C) A gap develops between the parklet/streatery and sidewalk; or

(D) The parklet/streatery creates visibility issues.

vi. As a condition of permit issuance, the parklet/streatery permittee shall agree in writing, in a form approved by the metropolitan department of law, to authorize metro to remove the parklet/streatery at the permittee's sole cost in the event that any of the occurrence of any of the circumstances for removal herein.

vii. If any of the above violations occur, the applicant will be sent notice of the violations and, except in the case of dangerous or threatening conditions, will be given a maximum of five working days to remedy the condition or remove the parklet/streatery. If the permittee fails to timely or adequately maintain or repair the encroachment or remove the encroachment within the five working days, the permit will be terminated. Once the permit is terminated, the parklet/streatery must be removed at the sole cost of the permittee within three calendar days. When the encroachment causes a dangerous condition or threat of danger to life or property, the permit will be terminated without the five day notice and removed immediately at permittee's cost.

c. Metro, at its sole discretion, may remove the parklet/streatery and restore the public right-of-way to its previous condition upon a finding that it is in the public interest for metro to fund or partially fund removal of the parklet/streatery.

12. Transfer of Permits. If the permittee sells its business interests, one of the following must be done:

a. Removal of the parklet/streatery; or

b. Upon the approval of metro, a new permit in the purchaser's name may be issued. The new permittee must comply with all other requirements for the issuance of a permit.

13. Program Changes. Metro reserves the right to amend the parklet/streatery program and all terms contained within it up until the point that a final permit is issued. Applicants may withdraw their application if they do not agree with any of the policy changes. (Ord. BL2023-1689 § 1, 2023)

13.32.170 Gratings or cellar doors opening onto sidewalks—Restrictions.

A. It is unlawful to open any grating or cellar door in any sidewalk within the urban services district, unless the grating or door is opened by a person standing on the sidewalk. Such grating or door shall be allowed to remain open only so long as may be absolutely necessary, and while open shall be carefully secured by a railing or barricade.

B. No owner or occupant of a house in the urban services district shall suffer or permit his cellar door on the Public Square or on any street, lane or alley to be or remain open, except when in actual use, or shall have it so insecure as to render walking thereupon or thereover unsafe or dangerous. (Prior code § 38-2-8)

13.32.190 Depositing wood, coal or lumber on sidewalks.

It is unlawful for any person to throw or permit to be thrown, and there to remain for more than one hour, any wood, coal or any kind of lumber on any sidewalk or that part of the street, lane or alley appropriated for sidewalks, except so far as is absolutely unavoidable in cases of building. (Prior code § 38-2-10)

13.32.200 Throwing articles from houses into street.

It is unlawful for any person to throw or cause to be thrown any article of any description out of any house or part of house into any of the streets, lanes or alleys in the urban services district or any part of the public square. (Prior code § 38-2-3)

13.32.210 Injuring trees prohibited.

No person shall wilfully break, pull down, hurt or destroy any tree which is now or may hereafter be planted within the urban services district; provided, that nothing in this section shall be so construed as to prevent the metropolitan government from removing any tree which it may deem so situated as to obstruct any street or sidewalk, or to prevent any proprietor of a lot from cutting down any tree on or in front of his lot. (Prior code § 38-2-1)

13.32.220 Washing vehicles on streets prohibited.

The washing of vehicles on the streets of the urban services district is prohibited and declared to be a nuisance. (Prior code § 38-2-14)

Chapter 13.36

RESERVED*

*Editor's note—Ord. BL2012-261, § 19, adopted Oct. 16, 2012, repealed Ch. 13.36, §§ 13.36.010—13.36.130, which pertained to curb markets and derived from prior Code §§ 25-2-1—25-2-13.

Chapter 13.40

PARKING LOTS, DECKS AND GARAGES

Sections:

13.40.010	**Definitions.**
13.40.020	**Provisions supplemental to building code.**
13.40.030	**Safeguard requirements.**
13.40.040	**Operations—Restrictions.**
13.40.050	**Compliance required—Variances.**
13.40.060	**Enforcement—Appeals.**
13.40.070	**Disabled driver parking in lots owned by the metropolitan government.**

13.40.010 Definitions.

For the purposes of this subchapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Basement and underground garages" mean and include garages located below grade and used solely for parking purposes. Motor vehicles may be parked by a garage attendant or by the driver. A basement garage has occupancies above it. An underground garage has no occupancy, other than a garage, above it.

"Car," "Truck" and "Vehicle." Such terms are interchangeable, and each includes the other.

"Existing" means in operation as of the effective date of this chapter.

"Parked vehicle" means any vehicle which has been assigned to a specific space in the parking pattern of a particular parking lot, parking deck or garage, and does not apply to a vehicle temporarily stopped on a ramp, aisle way, or in an entrance or exit.

"Parking garages" means garages having exterior enclosing walls, used for the parking of motor vehicles. Parking garages may involve the use of conventional type elevator, attendant operated, mechanical control push button elevators or ramps.

"Parking lots" means lots used for the temporary storage of passenger cars or trucks and having no building other than a waiting room and office space for the attendants at the lot.

"Proposed or new" means any parking facility established after the effective date of this chapter.

"Public parking decks" means open-air parking garages or structures having not less than fifty percent of two sides of the structure open at each story and limited in use only to the temporary parking of motor vehicles.

"Ramps" means passageways used in garages and parking decks to travel from one parking level to another. The term "ramp" does not include the entrances and exits of parking lots, parking decks or garages, and does not include aisle ways provided in a parking pattern for ingress and egress to specific parking spaces. (Prior code § 30-2-1)

13.40.020 Provisions supplemental to building code.

This chapter is intended to be supplemental to, and not in conflict with, the building code. (Prior code § 30-2-6)

13.40.030 Safeguard requirements.

A. All new and existing parking garages, public parking decks and open-air parking lots shall provide adequate safeguards to prevent automobiles, trucks or vehicles of any type from striking, pushing against, scraping, hitting or touching in any manner, the walls of adjoining buildings and to prevent automobiles, trucks or vehicles of any type from projecting out beyond the property line of the parking lot, garage or parking deck in question onto a public right-of-way, sidewalk or onto private property.

B. Such safeguards, unless otherwise adequately provided for, shall consist of a continuous wheel guard not less than six inches in height above the floor, with clear passage of forty-four inches between the wheel guard and the edge of the structure or property line. Along the outside boundary line of the structure or lot, at any point where vehicles are not parked parallel to the boundary, there shall be erected and maintained an adequate barrier capable of stopping, without damage to the exterior walls or to adjoining buildings, a vehicle weighing five thousand pounds and traveling at a speed of ten miles per hour. This barrier may be in the form of reinforced concrete spandrels or walls built contiguous with the slabs and columns or may be an adequate metal, or equal, guard rails or rails securely anchored to the ground, floors or columns. (Prior code § 30-2-2)

13.40.040 Operations—Restrictions.

The operation of public parking lots, parking garages, public parking decks, basement and underground garages shall be restricted as follows:

A. Wherever practicable, ramps shall be erected parallel to streets and street walls.

B. Vehicles shall not be backed across sidewalks unless a watchman is posted on the sidewalk at that time.

C. Vehicles shall not be parked on ramps if the ramp grades are greater than one to ten.

D. Cars shall not be operated in excess of ten miles per hour in parking facilities.

E. When parking spaces are arranged so that vehicles are backed into or parked in spaces at right angles to sidewalks or paths of pedestrian travel, adequate barriers to deflect exhaust fumes shall be erected and maintained.

F. Any other item which, in the opinion of the director of the department of codes administration, is reasonably necessary for the safe operation of any parking facility.

G. All parking lots and parking garages open to the public for which a parking fee is charged shall display a sign at the entrance of the parking lot or garage or at each automatic pre-payment station indicating the fee to be charged, as well as the amount of any fines or penalties that may be charged. The sign indicating the fee, fine and/or penalty to be charged shall be of adequate size and design to be clearly visible and legible to the motoring public. (Amdt. 1 to Ord. BL2017-741 § 1, 2017; Ord. BL2017-741 § 1, 2017; Ord. BL2013-390 § 1, 2013; Ord. BL2004-170 § 1, 2004; prior code § 30-2-3)

13.40.050 Compliance required—Variances.

A. No parking facilities, parking lots, parking garages, public parking decks, basement or underground garages, shall be operated in violation of this chapter. No parking facilities shall be licensed to operate unless the same have been first inspected and approved by the director of the department of codes administration or his authorized representative.

B. Where, by reason of exceptional narrowness, shallowness or shape of a specific piece of property, or by reason of exceptional topographical conditions or other extraordinary or exceptional situations or conditions of a piece of property, the application of this chapter and the regulations contained herein would result in a peculiar and exceptional practical difficulty to or exceptional or undue hardship upon the use of such property as a public parking lot, public parking deck or parking garage, or where the proposed use of such property is temporary in nature pending other development or use of such property by its owner and the strict application of this chapter would prevent the use of such property for parking facilities on a temporary basis by reason of the expense involved, the board of building code appeals shall have the power in a specific case to vary from strict application so as to relieve such difficulties or hardships, provided such relief may be granted without substantial detriment to the comfort, safety, convenience and general welfare of the citizens and purpose of this chapter. (Prior code § 30-2-4)

13.40.060 Enforcement—Appeals.

The director of the department of codes administration shall enforce the provisions of this chapter. No license shall be issued or renewed for the operation of any parking facility until the same has been approved as complying with the requirements of this chapter. Any person dissatisfied with any ruling of the director in the enforcement of this chapter may appeal therefrom to the board of building code appeals and have a hearing de novo on the matter in issue. (Prior code § 30-2-5)

13.40.070 Disabled driver parking in lots owned by the metropolitan government.

The department of public works shall post signs at the entrances to all parking garages owned by the metropolitan government informing drivers that, pursuant to T.C.A. § 55-21-105, no parking fee is charged for vehicles with a valid disabled driver license plate or placard. (Ord. BL2010-650 § 2, 2010)

Title 14

(RESERVED)

Title 15

WATER, SEWERS AND OTHER PUBLIC SERVICES

Chapters:

Division I. General Regulations

15.02 General Provisions
15.04 Definitions
15.08 Administrative Plans
15.12 Water and Sewer Service System
15.16 Water Mains, Service Connections and Meters
15.20 Water Main Tapping Fees and Charges
15.24 Sprinkler Systems for Fire Protection
15.28 Water Use Restrictions
15.32 Water Rates and Charges
15.34 Residential Sanitary Sewerage Pumping Systems
15.36 Sewer Main Tapping Fees and Charges
15.40 Sewer System Use Regulations
15.44 Sewer Rates and Charges
15.48 Water and Sewer Service Billing Procedures
15.52 Water and Sewer System Extensions
15.56 Air Conditioning and Refrigeration
15.60 Industrial Waste Discharges
15.64 Stormwater Management

Division II. Private Facilities

15.68 Private Fire Hydrants
15.72 Private Sewage Disposal Systems

Division I. General Regulations

Chapter 15.02

GENERAL PROVISIONS

Sections:

15.02.010 **Fees, in-lieu contributions and other assessments, estimates or payments.**

15.02.010 Fees, in-lieu contributions and other assessments, estimates or payments.

Fees, in-lieu contributions and other assessments, estimates or payments required by this title or by the metropolitan government in furtherance of this title for single or multi-phase developments shall be determined by the fee or rate at the time of assessment or payment, whichever is later. The Metropolitan Government of Nashville and Davidson County may update fees and rates over time to reflect current standards and/or changes in market rates. (Ord. BL2014-947 § 2, 2014)

Chapter 15.04

DEFINITIONS*

Sections:

15.04.010 In general.
15.04.020 Abbreviations.
15.04.030 Act or the Act.
15.04.035 Antifreeze.
15.04.040 Approval authority.
15.04.050 Authority.
15.04.060 Authorized representative of industrial user.
15.04.065 Best management practices or BMPs.
15.04.070 Building sewer.
15.04.080 Categorical pretreatment standards.
15.04.085 Categorical industrial user.
15.04.090 Community sewer.
15.04.100 Compatible pollutant.
15.04.110 Control authority.
15.04.115 Daily maximum.
15.04.120 Direct discharge.
15.04.130 Director.
15.04.140 Domestic sewage.
15.04.150 Environmental Protection Agency.
15.04.155 Existing source.
15.04.158 Food service establishment.
15.04.160 Grab sample.
15.04.170 Holding tank waste.
15.04.180 Incompatible pollutant.
15.04.190 Indirect discharge.
15.04.200 Industrial user.
15.04.210 Interference.
15.04.215 Instantaneous limit.
15.04.217 Local limit.
15.04.220 Mass emission rate.
15.04.230 Maximum concentration.
15.04.235 Medical waste.
15.04.240 Metro.
15.04.245 Monthly average.
15.04.248 Multi-dwelling unit.
15.04.249 Municipal user.
15.04.250 National Pollution Discharge Elimination System permit.
15.04.260 National pretreatment standards.
15.04.270 New source.
15.04.275 Non-contact cooling water.
15.04.278 Pass through.
15.04.280 Person.
15.04.285 pH.
15.04.286 Pharmaceuticals.
15.04.288 Pollutant.
15.04.290 Pollution.
15.04.300 Premises.
15.04.310 Pretreatment.
15.04.320 Pretreatment requirements.
15.04.325 Pretreatment standards or standards.
15.04.330 Publicly owned treatment works.
15.04.340 Reclaimed water.
15.04.345 Septic tank waste.
15.04.348 Significant industrial user.
15.04.349 Significant noncompliance.
15.04.350 Slug load or slug discharge.
15.04.355 Standard industrial classification.
15.04.360 Stormwater.
15.04.370 Toxic pollutant.
15.04.380 Treatment works.
15.04.385 Twenty-four-hour, flow proportional composite sample.
15.04.390 Unpolluted water.
15.04.400 User.
15.04.410 Waste.
15.04.420 Wastewater.
15.04.430 Wastewater constituents and characteristics.
15.04.440 Waters of the State of Tennessee.

*Editor's note—Ord. BL2010-678, § 1, approved June 2, 2010, repealed the former Ch. 15.04, §§ 15.04.010—15.04.440, and enacted a new Ch. 15.04 as set out herein. The former Ch. 15.04 pertained to similar subject matter and derived from prior Code § 40-1-5(a), (b) (c); Ord. 97-729 § 2, 1997; Ord. BL2006-1239 § 1, 2006.

15.04.010 In general.

A. For purposes of this chapter, the following phrases and words shall have the meanings assigned below, except in the instances where the context clearly indicates a different meaning.

B. Terms not otherwise defined in this chapter, if questioned, shall be as adopted in the latest edition of the "Standard Methods for the Examinations of Water and Wastewater," published by the American Public Health Association, the American Water Works Association, and the Water Pollution Control Federation. (Ord. BL2010-678 § 1, 2010)

15.04.020 Abbreviations.

The following abbreviations shall have the following meanings:

"BOD_5"	Biochemical oxygen demand
"BMP"	Best management practices
"BMR"	Baseline monitoring report
"CFR"	Code of Federal Regulations
"CIU"	Categorical industrial user
"COD"	Chemical oxygen demand
"EPA"	U.S. Environmental Protection Agency
"FOG"	Fats, oils and grease
"FSE"	Food Service Establishment
"GMP"	Good management practices
"gpd"	Gallons per day
"IU"	Industrial user
"l"	Liter
"MBAS"	Methylene-blue-active substances
"mg"	Milligram
"mg/l"	Milligrams per liter
"NPDES"	National Pollutant Discharge Elimination System
"NSCIU"	Non-significant categorical industrial user
"POTW"	Publicly owned treatment works
"RCRA"	Resource Conservation and Recovery Act
"SIC"	Standard industrial classification
"SIU"	Significant industrial user
"SNC"	Significant noncompliance
"SWDA"	Solid Waste Disposal Act, 42 U.S.C. 6901 et seq.
"TSS"	Total suspended solids
"U.S.C."	United States Code

(Ord. BL2010-678 § 1, 2010)

15.04.030 Act or the Act.

"Act" or "the Act" means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. 1251 et seq. (Ord. BL2010-678 § 1, 2010)

15.04.035 Antifreeze.

"Antifreeze" means antifreeze and antifreeze mixtures which contain glycolic compounds that are typically toxic and may have excessively high BOD_5 and metals. (Ord. BL2010-678 § 1, 2010)

15.04.040 Approval authority.

"Approval authority" means the Tennessee Division of Water Pollution Control Director or his/her Representative(s). (Ord. BL2010-678 § 1, 2010)

15.04.050 Authority.

"Authority" or "hearing authority" means wastewater hearing authority. (Ord. BL2010-678 § 1, 2010)

15.04.060 Authorized representative of industrial user.

An authorized representative of an industrial user may be:

A. The president, secretary, treasurer, or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation, if the industrial user is a corporation;

B. A general partner or proprietor if the industrial user is a partnership or proprietorship, respectively;

C. If the industrial user is a federal, state, or local governmental facility: a director or highest official appointed or designated to oversee the operation and performance of the activities of the governmental facility, or their designee;

D. Or the individuals described in A. through C., above, may designate a duly authorized representative if the authorization is in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to Metro Department of Water and Sewerage Services. (Ord. BL2010-678 § 1, 2010)

15.04.065 Best management practices or BMPs.

Best management practices or BMPs means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in 15.60.080 or Tennessee Rule 1200-4-14-.05(1)(a) and (2). BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage. Also, BMPs include alternative means (i.e. management plans) of complying with, or in place of certain established categorical pretreatment standards and effluent limits. (Ord. BL2010-678 § 1, 2010)

15.04.070 Building sewer.

"Building sewer" means a sewer conveying wastewater from the premises of a user to a community sewer. (Ord. BL2010-678 § 1, 2010)

15.04.080 Categorical pretreatment standards.

"Categorical pretreatment standards" means any regulation containing pollutant discharge limits promulgated by EPA in accordance with sections 307(b) and (c) of the Act (33 U.S.C. section 1317) that apply to a specific category of users that appear in 40 CFR Chapter I, Subchapter N, Parts 405-471. (Ord. BL2010-678 § 1, 2010)

15.04.085 Categorical industrial user.

"Categorical industrial user" means an industrial user subject to a categorical pretreatment standard or categorical standard. (Ord. BL2010-678 § 1, 2010)

15.04.090 Community sewer.

"Community sewer" means any sewer containing wastewater from more than one premise. (Ord. BL2010-678 § 1, 2010)

15.04.100 Compatible pollutant.

"Compatible pollutant" means biochemical oxygen demand, chemical oxygen demand, suspended solids, ammonia, pH and fecal coliform bacteria, oil and grease; plus any additional pollutants identified in the publicly owned treatment work's NPDES permit, for which the publicly owned treatment works is designed to treat such pollutants and in fact does remove such pollutants to a substantial degree. (Ord. BL2010-678 § 1, 2010)

15.04.110 Control authority.

The term "control authority" shall refer to the Director of the Metropolitan Department of Water and Sewerage Services, or their authorized representative. (Ord. BL2010-678 § 1, 2010)

15.04.115 Daily maximum.

"Daily maximum" means the arithmetic average of all effluent samples for a pollutant (except pH) collected during a calendar day. (Ord. BL2010-678 § 1, 2010)

15.04.120 Direct discharge.

"Direct discharge" means the discharge of treated or untreated wastewater directly to the waters of the state of Tennessee. (Ord. BL2010-678 § 1, 2010)

15.04.130 Director.

"Director" means the Director of the Metropolitan Department of Water and Sewerage Services or the person designated by the director to supervise the operation at the POTW, and who is charged with certain duties and responsibilities by this title. (Ord. BL2010-678 § 1, 2010)

15.04.140 Domestic sewage.

"Domestic sewage" means wastewater or sewage having the same general characteristics as that originating in places used exclusively as a single-family residence. Strength of the compatible pollutants in domestic sewage shall not exceed the following:

BOD_5	300 mg/l
COD	500 mg/l
Suspended solids	325 mg/l
Ammonia nitrogen	30 mg/l
pH	6.0—9.0 S.U.
Oil and grease	50 mg/l

(Ord. BL2010-678 § 1, 2010)

15.04.150 Environmental Protection Agency.

"Environmental Protection Agency" or "EPA" means the Environmental Protection Agency, an agency of the United States, or where appropriate the term may also be used as a designation for the administrator or other duly authorized official of such agency. (Ord. BL2010-678 § 1, 2010)

15.04.155 Existing source.

"Existing source" means any source of discharge that is not a "new source". (Ord. BL2010-678 § 1, 2010)

15.04.158 Food service establishment.

"Food service establishment" means an establishment engaged in production/clean-up of non-residential food and/or drink. Any building, vehicle, place, or structure, or any room or division in a building, vehicle, place, or structure where food is prepared, served, or sold for immediate consumption on or in the vicinity of the premises; called for or taken out by customers; or prepared prior to being delivered to another location for consumption. (Ord. BL2010-678 § 1, 2010)

15.04.160 Grab sample.

"Grab sample" means a sample which is taken from a waste stream without regard to the flow in the waste stream and over a period of time not to exceed 15 minutes. (Ord. BL2010-678 § 1, 2010)

15.04.170 Holding tank waste.

"Holding tank waste" means any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks and vacuum-pump tank trucks. (Ord. BL2010-678 § 1, 2010)

15.04.180 Incompatible pollutant.

"Incompatible pollutant" means all pollutants other than compatible pollutants as defined in Section 15.04.100 of this chapter. (Ord. BL2010-678 § 1, 2010)

15.04.190 Indirect discharge.

"Indirect discharge" means the discharge or the introduction of nondomestic pollutants from any source regulated under Section 307(b) or (c) of the Act (33 U.S.C. 1317), into the POTW (including holding tank waste discharged into the system) for treatment before direct discharge to the waters of the state. (Ord. BL2010-678 § 1, 2010)

15.04.200 Industrial user.

"Industrial user" means a source of indirect discharge which does not constitute a "discharge of pollutants" under regulations issued pursuant to Section 402 of the Act. This term shall also include all dischargers of wastes having characteristics other than those of "domestic sewage" as defined in Section 15.04.140. (Ord. BL2010-678 § 1, 2010)

15.04.210 Interference.

"Interference" means a discharge that, alone or in conjunction with a discharge or discharges from other sources, inhibits or disrupts the POTW, its treatment processes or operations, or its sludge processes, use or disposal; or exceeds the design capacity of the treatment works or collection system; or contributes to a violation of any requirement of Metro's NPDES permit. The term includes prevention of sewage sludge use or disposal by the POTW in accordance with Section 405 of the Act (33 U.S.C. 1345) or any criteria, guidelines or regulations developed pursuant to the Solid Waste Disposal Act (SWDA), the Clean Air Act, the Toxic Substances Control Act, or more stringent state criteria (including those contained in any state sludge management plan prepared pursuant to Title IV of SWDA) applicable to the method of disposal or use employed by the POTW. (Ord. BL2010-678 § 1, 2010)

15.04.215 Instantaneous limit.

"Instantaneous limit" means the maximum concentration of a pollutant allowed to be discharged at any time, determined from the analysis of any grab or composited sample collected, independent of the industrial flow rate and the duration of the sampling event. (Ord. BL2010-678 § 1, 2010)

15.04.217 Local limit.

"Local limit" refers to specific discharge limits developed and enforced by Metro upon industrial and commercial facilities to implement the general and specific discharge prohibitions listed in Tennessee Rule 1200-4-14-.05(1)(a) and (2). (Ord. BL2010-678 § 1, 2010)

15.04.220 Mass emission rate.

"Mass emission rate" means the weight of material discharged to the community sewer system during a given time interval. Unless otherwise specified, the mass emission rate shall mean pounds per day of the particular constituent or combination of constituents. (Ord. BL2010-678 § 1, 2010)

15.04.230 Maximum concentration.

"Maximum concentration" means the maximum amount of a specified pollutant in a volume of water or wastewater. (Ord. BL2010-678 § 1, 2010)

15.04.235 Medical waste.

"Medical waste" means Isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated beading, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes. (Ord. BL2010-678 § 1, 2010)

15.04.240 Metro.

"Metro" means the Metropolitan Government of Nashville and Davidson County, Tennessee. (Ord. BL2010-678 § 1, 2010)

15.04.245 Monthly average.

"Monthly average" means the sum of all "daily discharges" measured during a calendar month divided by the number of "daily discharges" measured during that month. (Ord. BL2010-678 § 1, 2010)

15.04.248 Multi-dwelling unit.

A multi-dwelling unit is a commercial or residential building with multiple offices or apartments. (Ord. BL2010-678 § 1, 2010)

15.04.249 Municipal user.

A municipal user is a municipality, city, utility district, town or county which provides wastewater services through a contract with the Metropolitan Department of Water and Sewerage Services. (Ord. BL2010-678 § 1, 2010)

15.04.250 National Pollution Discharge Elimination System permit.

"National Pollution Discharge Elimination System or NPDES permit" means a permit issued to a POTW pursuant to Section 402 of the Act (33 U.S.C. 1342). (Ord. BL2010-678 § 1, 2010)

15.04.260 National pretreatment standards.

"National pretreatment standards" or "pretreatment standard" means any regulation containing pollutant discharge limits promulgated by the EPA in accordance with Section 307(b) and (c) of the Act (33 U.S.C. 1347) which applies to industrial users (Prior code § 40-1-5 (a)(23)) as well as any applicable local limits as defined in 15.04.217. (Ord. BL2010-678 § 1, 2010)

15.04.270 New source.

"New source" means:

A. Any building, structure, facility, or installation from which there is (or may be) a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under Section 307(c) of the Act that will be applicable to such source if such Standards are thereafter promulgated in accordance with that section, provided that:

1. The building, structure, facility, or installation is constructed at a site at which no other source is located; or

2. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an Existing Source; or

3. The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.

B. Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility or installation meeting the criteria of Section (1)(b) or (c) above but otherwise alters, replaces, or adds to existing process or production equipment.

C. Construction of a new source as defined under this paragraph has commenced if the owner or operator has:

1. Begun, or caused to begin, as part of a continuous onsite construction program: (i) any placement, assembly, or installation of facilities or equipment; or (ii) significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

2. Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this paragraph. (Ord. BL2010-678 § 1, 2010)

15.04.275 Non-contact cooling water.

"Non-contact cooling water" means water used for cooling that does not come into direct contact with any raw material, intermediate product, waste product, or finished product. (Ord. BL2010-678 § 1, 2010)

15.04.278 Pass through.

"Pass through" means a discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of Metro's NPDES permit, including an increase in the magnitude or duration of a violation. (Ord. BL2010-678 § 1, 2010)

15.04.280 Person.

"Person" means any and all persons, including individuals, partnerships, co-partnerships, firms, companies, public or private corporations, associations, public or private institutions, state and federal agencies, municipals or political subdivisions, or officers thereof, departments, agencies, or instrumentalities, joint stock companies, trust estates, governmental entity or any other legal entity, or their legal representatives, agents or assigns, organized or existing under the laws of this or any state or country. (Ord. BL2010-678 § 1, 2010)

15.04.285 pH.

"pH" means a measure of the acidity or alkalinity of a solution, expressed in standard units. (Ord. BL2010-678 § 1, 2010)

15.04.286 Pharmaceuticals.

"Pharmaceuticals" means a substance used in the treatment of disease: Drug, medicament, medication, medicine. Pharmaceuticals are drugs or medicine that is prepared or dispensed in pharmacies and used in medical treatment. (Ord. BL2010-678 § 1, 2010)

15.04.288 Pollutant.

"Pollutant" means dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, oils, greases, municipal, agricultural and industrial wastes, and certain characteristics of wastewater (e.g. pH, tem-

perature, TSS, turbidity, color, BOD, COD, toxicity, or odor). (Ord. BL2010-678 § 1, 2010)

15.04.290 Pollution.

"Pollution" means the man-made or man-induced alteration of the chemical, physical, biological and radiological integrity of water. (Ord. BL2010-678 § 1, 2010)

15.04.300 Premises.

"Premises" means a parcel of real estate or portion thereof, including any improvements thereon, which is determined by the director to be a single user for purposes of receiving, using and paying for services. (Ord. BL2010-678 § 1, 2010)

15.04.310 Pretreatment.

"Pretreatment" means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to or in lieu of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration can be obtained by physical, chemical or biological processes, process changes or by other means, except as prohibited by 40 CFR Section 403.6(d). (Ord. BL2010-678 § 1, 2010)

15.04.320 Pretreatment requirements.

"Pretreatment requirements" means any substantive or procedural requirement related to pretreatment imposed on an industrial user, other than a pretreatment standard. (Ord. BL2010-678 § 1, 2010)

15.04.325 Pretreatment standards or standards.

"Pretreatment standards" shall mean prohibited discharge standards, categorical pretreatment standards, and local limits. (Ord. BL2010-678 § 1, 2010)

15.04.330 Publicly owned treatment works.

"Publicly owned treatment works" or "POTW" means a treatment works as defined by Section 212 of the Act (33 U.S.C. 1292) which is owned by Metro. This definition includes any sewers, devices, or systems used in the collection, storage, treatment, recycling, and reclamation of sewage or industrial wastes of a liquid nature and any conveyances, which convey wastewater to a treatment plant. The term also means the metropolitan government of Nashville and Davidson County, a municipality, as defined in Section 502(4) of the Act (33 U.S.C. 1362) which has jurisdiction over the indirect discharges to and the discharges from such a treatment works. (Ord. BL2010-678 § 1, 2010)

15.04.340 Reclaimed water.

"Reclaimed water" means water which, as a result of treatment of waste, is suitable for direct beneficial uses or a controlled use that would not occur otherwise. (Ord. BL2010-678 § 1, 2010)

15.04.345 Septic tank waste.

"Septic tank waste" means any domestic sewage from holding tanks such as vessels, chemical toilets, campers, trailers, and septic tanks. Septic tank waste does not include commercial food service establishment fats, oils and grease waste. (Ord. BL2010-678 § 1, 2010)

15.04.348 Significant industrial user.

Except as provided in paragraphs C. and D. of this section, a "significant industrial user" is:

A. An industrial user subject to categorical pretreatment standards; or

B. An industrial user that:

1. Discharges an average of twenty-five thousand (25,000) gpd or more of process wastewater to the POTW (excluding sanitary, noncontact cooling and boiler blowdown wastewater); or

2. Contributes a process wastestream which makes up five (5) percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or

3. Is designated as such by Metro on the basis that it has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement

C. Metro may determine that an industrial user subject to categorical pretreatment standards is a nonsignificant categorical industrial user rather than a significant industrial user on a finding that the industrial user never discharges more than 100 gpd of total categorical wastewater (excluding sanitary, non-contact cooling and boiler blowdown wastewater, unless specifically included in the pretreatment standard) and the following conditions are met:

1. The industrial user, prior to Metro's finding, has consistently complied with all applicable categorical pretreatment standards and requirements;

2. The industrial user annually submits the certification statement required in Section 15.60.258 (B) {see Tennessee Rule 1200-4-14-.12(17)}, together with any additional information necessary to support the certification statement; and

3. The industrial user never discharges any untreated concentrated wastewater.

D. Upon a finding that a user meeting the criteria in subsection B. of this part has no reasonable potential for adversely affecting the POTW's operation or for violating

any pretreatment standard or requirement, Metro may at any time, but at least once every twelve (12) months, on its own initiative or in response to a petition received from an industrial user, and in accordance with procedures in Tennessee Rule 1200-4-14-.08(6)(f), determine that such user should not be considered a significant industrial user. (Ord. BL2010-678 § 1, 2010)

15.04.349 Significant noncompliance.

The director shall publish annually, in a newspaper of general circulation that provides meaningful public notice within the jurisdictions served by Metro Water Services, a list of the users which, at any time during the previous twelve (12) months, were in significant noncompliance with applicable pretreatment standards and requirements. The term significant noncompliance shall be applicable to all significant industrial users (or any other industrial user that violates paragraphs C., D. or H. of this section) and shall mean:

A. Chronic violations of wastewater discharge limits, defined here as those in which sixty-six percent (66%) or more of all the measurements taken for the same pollutant parameter taken during a six-month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits as defined in Metro Code of Laws Title §15.60.070;

B. Technical review criteria (TRC) violations, defined here as those in which thirty-three percent (33%) or more of wastewater measurements taken for each pollutant parameter during a six-month period equals or exceeds the product of the numeric pretreatment standard or requirement including instantaneous limits, as defined by Metro Code of Laws Title §15.60.070 multiplied by the applicable criteria (1.4 for BOD, TSS, fats, oils and grease, and 1.2 for all other pollutants except pH);

C. Any other violation of a pretreatment standard or requirement as defined by Metro Code of Laws Title § 15.60.070 (daily maximum, long-term average, instantaneous limit, or narrative standard) that the director determines has caused, alone or in combination with other discharges, interference or pass through, including endangering the health of POTW personnel or the general public;

D. Any discharge of a pollutant that has caused imminent endangerment to the public or to the environment, or has resulted in the director's exercise of its emergency authority to halt or prevent such a discharge;

E. Failure to meet, within ninety (90) days of the scheduled date, a compliance schedule milestone contained in an individual wastewater discharge permit or a general permit or enforcement order for starting construction, completing construction, or attaining final compliance;

F. Failure to provide within thirty (30) days after the due date, any required reports, including baseline monitoring reports, reports on compliance with categorical pretreatment standard deadlines, periodic self-monitoring reports, and reports on compliance with compliance schedules;

G. Failure to accurately report noncompliance; or

H. Any other violation(s), which may include a violation of best management practices, which the director determines will adversely affect the operation or implementation of the local pretreatment program. (Ord. BL2010-678 § 1, 2010)

15.04.350 Slug load or slug discharge.

"Slug load" or "slug discharge" means any discharge at a flow rate or concentration, which could cause a violation of the prohibited discharge standards of this ordinance. A slug discharge is any discharge of nonroutine, episodic nature, including but not limited to an accidental spill or non-customary batch discharge, which has a reasonable potential to cause interference or pass through, or in any other way violate the POTW's regulations, local limits, or permit conditions. (Ord. BL2010-678 § 1, 2010)

15.04.355 Standard industrial classification.

"Standard industrial classification" means a classification pursuant to the Standard Industrial Classification Manual issued by the executive office of the president, office of management and budget, 1972. (Ord. BL2010-678 § 1, 2010)

15.04.360 Stormwater.

"Stormwater" means any flow occurring during or following any form of natural precipitation, and resulting from such precipitation, including snowmelt. (Ord. BL2010-678 § 1, 2010)

15.04.370 Toxic pollutant.

"Toxic pollutant" means any pollutant or combination of pollutants listed as toxic in regulations promulgated by the administrator of the Environmental Protection Agency under the provisions of 33 U.S.C. 1317. (Ord. BL2010-678 § 1, 2010)

15.04.380 Treatment works.

"Treatment works" means any devices and systems used in the storage, treatment, recycling and reclamation of domestic sewage or industrial wastes of a liquid nature including interceptor sewers, outfall sewers, sewage collection systems, pumping, power and other equipment and appurtenances; extensions, improvements, remodeling, additions and alterations thereof; elements essential

to provide a reliable recycled supply such as standby treatment units and clear well facilities; and any works including land that will be an integral part of the treatment process or is used for ultimate disposal of residues resulting from such treatment; and including combined storm water and sanitary sewer systems. (Ord. BL2010-678 § 1, 2010)

15.04.385 Twenty-four-hour, flow proportional composite sample.

"Twenty-four-hour, flow proportional composite sample" means a sample consisting of several effluent portions collected during a twenty-four-hour period in which the portions of sample are proportionate to the flow and combined to form a representative sample. (Ord. BL2010-678 § 1, 2010)

15.04.390 Unpolluted water.

"Unpolluted water" means water to which no constituent has been added, either intentionally or accidentally, which would render such water unacceptable to the state of Tennessee or the Environmental Protection Agency having jurisdiction thereof for disposal to storm or natural drainage, or directly to surface waters. (Ord. BL2010-678 § 1, 2010)

15.04.400 User.

"User" means any person, firm, corporation or governmental entity that discharges, causes or permits the discharge of wastewater into a community sewer. (Ord. BL2010-678 § 1, 2010)

15.04.410 Waste.

"Waste" means and includes sewage and any and all other waste substances, liquid, solid, gaseous or radioactive, associated with human habitation, or of human or animal origin, or from any producing, manufacturing or processing operation of whatever nature, including such waste placed within containers of whatever nature prior to, and for purposes of, disposal. (Ord. BL2010-678 § 1, 2010)

15.04.420 Wastewater.

"Wastewater" means liquid and water-carried wastes and sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities, and institutions, whether treated or untreated, which are contributed to the POTW. (Ord. BL2010-678 § 1, 2010)

15.04.430 Wastewater constituents and characteristics.

"Wastewater constituents and characteristics" means the individual chemical, physical, bacteriological and radiological parameters, including volume and flow rate and such other parameters that serve to define, classify or measure the contents, quality, quantity and strength of wastewater. (Ord. BL2010-678 § 1, 2010)

15.04.440 Waters of the State of Tennessee.

"Waters of the State of Tennessee" means any water, surface or underground, within the boundaries of the state. (Ord. BL2010-678 § 1, 2010)

Chapter 15.08

ADMINISTRATIVE PLANS

Sections:

15.08.010	**Master water plan—Adopted—Implementation—Revisions.**
15.08.020	**Wastewater facilities plan—Adopted—Implemented—Revisions.**

15.08.010 Master water plan—Adopted—Implementation—Revisions.

A. The Metropolitan Government of Nashville and Davidson County adopts the metropolitan master water plan, copies of which are on file in the office of the director of the department of water and sewerage services, the metropolitan clerk, and the metropolitan planning commission.

B. The metropolitan master water plan will be implemented by the metropolitan government whenever it proposes to construct water facilities within the area of the metropolitan government.

C. Future amendments or revisions to the metropolitan master water plan which occur may be by resolution of the metropolitan council. (Prior code § 40-1-4.1)

15.08.020 Wastewater facilities plan—Adopted—Implemented—Revisions.

A. The metropolitan government adopts the Metropolitan 201 Wastewater Facilities Plan, copies of which are on file in the office of the director of the department of water and sewerage services, the metropolitan clerk, and the metropolitan planning commission.

B. The Metropolitan 201 Wastewater Facilities Plan will be implemented by the metropolitan government whenever it proposes to construct wastewater facilities within the area of the metropolitan government.

C. Future amendments or revisions to the Metropolitan 201 Wastewater Facilities Plan which occur may be by resolution of the metropolitan council. (Prior code § 40-1-4.2)

Chapter 15.12

WATER AND SEWER SERVICE SYSTEM

Sections:

15.12.010 Regulations—Authority of director.
15.12.020 Service contract—Prerequisites.
15.12.030 Pre-existing special contracts not affected by this title.
15.12.040 Connection to water main or sewer—Permit required.
15.12.050 Use of water—Permit required.
15.12.055 Council approval of fees and charges required.
15.12.060 Reconnection—Permit required.
15.12.070 Cross-connections prohibited—Contamination prevention requirements.
15.12.080 Construction and improvement of service lines—Approval required—Appeal.
15.12.085 Responsibility for work performed in public right-of-way or other easement.
15.12.090 Disposition of entire gross revenue—Funds established.
15.12.100 Disposition of miscellaneous revenue—Funds established.
15.12.110 Public fire protection.
15.12.120 Reservoirs—Not open to public.
15.12.130 Discontinuance of service on order of owner—Exception.
15.12.140 Repairs and extensions—Authority to shut off water.
15.12.150 Use of fire hydrants—Permission required.
15.12.160 Use of special hydrant wrenches.
15.12.170 Persons owing for past services not eligible for water services.
15.12.180 Consumers furnishing water to other persons prohibited.
15.12.190 Damage resulting from pressure changes—Customer's responsibility.
15.12.200 Interference with department property prohibited—Unauthorized connections—Blocking fire hydrants.
15.12.210 Duty of police department to report violations.
15.12.220 Right of entry when.
15.12.230 Violations—Discontinuance of service.
15.12.240 Violations—Penalties—Revocation of permits.

15.12.010 Regulations—Authority of director.

The director shall have the right to make any special decision as to the regulations of the department if, in his judgment, he deems that it is for the best interests of the department that he make such decision. (Prior code § 40-1-13)

15.12.020 Service contract—Prerequisites.

A. After the service line has been approved by the department and such approval has been certified to the division of billing and collection of the department, the prospective customer shall be eligible to receive water service under such standard terms as the department shall develop. A complete statement of the standard terms of service and any subsequent amendments thereto shall be signed by the director and filed with the metropolitan clerk and a copy furnished to any customer upon request. A copy of the standard terms of service then in effect shall be mailed with the customer's first bill for service. A customer's request for water or sewerage service or use of water or sewerage services furnished by the department shall constitute that customer's acceptance of a contract for service upon and agreement to be bound by the standard terms of service, including future amendments, all provisions of this title, and the existing and future rules and regulations of the department.

B. The prospective customer shall, to the best of his knowledge, furnish such information as the department may reasonably request at the time water or sewerage service is initiated. (Ord. BL2005-867 §§ 1, 2, 2005; prior code § 40-1-7)

15.12.030 Pre-existing special contracts not affected by this title.

No special water contracts which have been ratified by the metropolitan council or the city council of the former City of Nashville as separate agreements shall be affected or modified by the provisions of this title. (Prior code § 40-1-8)

15.12.040 Connection to water main or sewer—Permit required.

It is unlawful for any person to make any tap or connection with any water main or sanitary sewer, or

with any pipes connected with any water main or sanitary sewer, or with the waterworks plant or the wastewater treatment plant belonging to the metropolitan government, without first obtaining a written permit from the department. Developers and/or property owners will be responsible for completing the cut and cap process for all unneeded water and sewer connections in the right of way or easement including residential, irrigation and commercial services at the time the property is redeveloped. The director of MWS, or his designee, will review and inspect the field capping process to ensure compliance with this provision. (Ord. BL2015-1213 § 1, 2015; prior code § 40-1-9)

15.12.050 Use of water—Permit required.

It is unlawful for any person to use water from any pipe connected with any water main or the waterworks plant of the metropolitan government or to discharge sewage or sewage waste into any pipe connected with the sanitary sewerage system of the metropolitan government without first obtaining a written permit from the department. (Prior code § 40-1-11)

15.12.055 Council approval of fees and charges required.

No fee or charge shall be imposed, whether by agreement of the customer or otherwise, for the connection to any water main or sanitary sewer in Davidson County, including, but not limited to, tap fees, capacity charges or basin charges, unless the metropolitan council, by ordinance, has authorized the department of water and sewerage services to impose such a fee or charge for new connections. (Ord. BL2006-1124 § 1, 2006)

15.12.060 Reconnection—Permit required.

A. It is unlawful for any person, without first obtaining a permit from the department, to turn on water or to make any connection with the pipes or other fixtures of the water and sewerage system after the same have been shut off, stopped or discontinued by the department.

B. Where the water has been turned off by the department for nonpayment of a bill, then, if upon proper investigation the water shall have been found to have been turned on without the consent of the department, this shall be deemed prima facie evidence that the occupant of the premises served is guilty of turning on the water in violation of this section. (Prior code § 40-1-10)

15.12.070 Cross-connections prohibited—Contamination prevention requirements.

A. A cross connection is any connection between the water supply system ("system") of the metropolitan government and any other water supply system or any connection between the system and any other system or device that could cause a backflow, backsiphonage or provide an entry point of any material, fluid or otherwise, into the system.

B. In the interest of protecting the public drinking water supply from contamination resulting from cross connections, the department of water and sewerage services ("department") is authorized to develop and administer a cross connection control plan ("plan") in accordance with standards established under the Federal Safe Drinking Water Act of 1974 and statutes and rules of the State of Tennessee governing public water systems. A copy of the plan shall be placed on file with the metropolitan clerk, and may be modified from time to time by the department as necessary.

C. To the extent the plan calls for the department to test private equipment and devices, the reasonable costs of such tests shall be the responsibility of the owner of such equipment and devices. The department shall bill and collect such costs in the same manner as other charges for water and sewerage services.

D. It is unlawful for any person to cause a cross connection to be made or to allow one to exist for any purpose without the express written consent of the department.

E. The department will approve requests for cross connections only where such requests are consistent with the criteria established in the plan.

F. The department shall, after reasonable efforts to notify the owner or other responsible entity, physically disconnect the water service line serving any property having or maintaining an unapproved cross connection. Service shall be restored only after the cross connection has been eliminated or an approved and functioning backflow prevention device is installed in accordance with the plan. (Ord. BL2005-844 § 1, 2006; prior code § 40-1-12)

15.12.080 Construction and improvement of service lines—Approval required—Appeal.

Any utility district created pursuant to the Utility District Law of 1937 (T.C.A. § 7-82-101 et seq.), which boundaries of such utility district lie wholly or partially within the area of Davidson County, shall, insofar as the construction, reconstruction, extending, replacing and

bettering of the water or sewer line of such district be governed and controlled by Section 11.505 of the metropolitan Charter. Any person, agency or corporation aggrieved by the decision of the metropolitan planning commission with respect to its exercise of powers pursuant to this section may appeal by certiorari to a court of competent jurisdiction; however, the judgment and findings of the commission on all questions of fact that may be involved in any appeal, cause, hearing or proceeding under this section shall be final and subject to review only for illegality or want of jurisdiction. (Prior code § 40-1-27.1)

15.12.085 Responsibility for work performed in public right-of-way or other easement.

In the event that the department undertakes work on a water line, sewer line, or other infrastructure owned by the metropolitan government and located within the public right-of-way or other public or utility easement, the department shall upon the completion of such work restore the approximate surface grade of any excavated area. The department shall not be responsible for the repair of any privately-owned material or infrastructure also located in the public right-of-way or other public or utility easement and damaged in the course of such work despite the exercise of reasonable care. (Ord. BL2012-333 § 1, 2013)

15.12.090 Disposition of entire gross revenue—Funds established.

The entire gross revenues, as defined in Chapter 15.04, derived from the operation of the water and sewerage system, shall be deposited in a special fund in a bank or trust company or banks or trust companies in the state which are eligible under the state laws to receive deposits of state and municipal funds, which fund is established and designated as the "water and sewerage system revenue fund" (hereinafter referred to as "revenue fund"), from which payments and deposits shall be made in the following manner and order of priority:

A. Revenue shall be first used for the payment of all current operating expenses of the water and sewerage system.

B. From the money remaining in the revenue fund, there shall next be made the deposits to the water and sewer revenue bond sinking fund (hereinafter referred to as "sinking fund"), as stipulated in the Bond Resolution No. 66-29 and all amendments thereto, for the purpose of paying the interest and principal on the water and sewer revenue bonds.

C. The remaining money in the revenue fund shall next be used to make the deposits to the reserve account in the sinking fund as stipulated in Bond Resolution No. 66-29 and all amendments thereto.

D. The remaining money in the revenue fund shall next be utilized to make the deposits to the extension and replacement fund as specified in Bond Resolution No. 66-29 and all amendments thereto.

E. The remaining money in the revenue fund shall next be used to make the deposits to the water and sewerage subordinate revenue bond sinking fund (hereinafter referred to as "subordinate sinking fund") required by Section 3.03(E) of Bond Resolution No. 66-29 and all amendments and supplements thereto.

F. The remaining money in the revenue fund shall next be used to make the deposits to the reserve account in the subordinate sinking fund as specified in Section 3.03(F) of Bond Resolution No. 66-29 and all amendments and supplements thereto.

G. From the money remaining in the revenue fund, after all required payments have been made under subsections A through F above, the metropolitan government shall next, on the first day of each month in each year, apportion and set apart out of the revenue fund and deposit in the urban services district debt service fund of the metropolitan government an amount equal to one-twelfth of the amount equal to the sum of the debt service requirements in the next succeeding year on all outstanding general obligation bonds heretofore issued by or assumed by the metropolitan government for water and sewer purposes.

H. From the money remaining in the revenue fund, after all required payments have been made under subsections A through G above, the metropolitan government shall next, on the first day of each month in each year, apportion and set apart out of the revenue fund and deposit in a fund known as the revolving fund created pursuant to the Charter of the metropolitan government, under Article 8, Chapter 5, thereof, such amount as shall be needed to make the aggregate amount then on deposit in such fund equal to two hundred thousand dollars. The money on deposit in such fund shall be used only for the purposes provided for in Article 8, Chapter 5, of the metropolitan Charter.

I. From the money remaining in the revenue fund, after all required payments have been made under subsections A through H above, the metropolitan government shall next, on the first day of each month in each year, apportion and set apart out of the revenue fund and deposit in such extension and replacement fund an amount which, together with the amount deposited in the revolving fund on such date, shall be equal to one-twelfth of ten percent of the gross revenues, as defined in Chapter 15.04, which were derived from the operation of the water and sewer system during the preceding fiscal year, until such extension and replacement fund shall have on deposit therein such amounts as may be recommended by the consulting engineers from time to time.

J. If, on any annual, semiannual, monthly or other payment date, the revenues are insufficient to deposit the required amounts in any of the funds provided for above, the deficiency shall be made up in the subsequent payments into such funds in addition to the payments which would otherwise be required to be made into such funds on the subsequent payment dates; provided, that any deficiencies in the respective sinking funds or reserve funds shall be made up before any further payment is

made into the extension and replacement fund, the urban services district debt service fund or the revolving fund.

K. Thereafter, the metropolitan government shall next, on the first day of each month in each year, after all required payments have been made under subsections A through J above, including any deficiencies for prior payments and deposits and after reserving in the revenue fund an amount for working capital for the payment of operating expenses, as determined by the consulting engineers, deposit the balance of any revenues remaining on deposit in the revenue fund in a fund to be known as the surplus revenue reserve fund, which fund is established.

1. Until the construction programs authorized in Section E of Volume I and Section E of Volume II of the water and sewerage rate study, as defined in Chapter 15.04, have been substantially completed or until April 15, 1981, whichever date is the earliest, the money on deposit in such surplus revenue reserve fund shall be used only to supply any deficiencies in the money in the revenue fund for required payments or deposits under subsections A through J above.

2. After the construction of the programs authorized in Section E of Volume I and Section E of Volume II of the water and sewerage rate study, or after April 15, 1981, whichever date is the earliest, the money on deposit in the surplus revenue reserve fund may further be used for the following additional purposes:

a. For the payment of the cost of the construction of additions, extensions and improvements to the water and sewer system, as recommended and approved by the consulting engineers.

b. For the purchase of outstanding water and sewer revenue bonds, including any pari passu additional bonds issued pursuant to Bond Resolution No. 66-29 of the last five maturities then outstanding at a price not greater than the redemption price of such outstanding water and sewer revenue bonds, such bonds issued pursuant to Bond Resolution No. 66-29 and any pari passu additional bonds issued, on the next ensuing redemption date or for the prior redemption of such outstanding water and sewer revenue bonds, such bonds issued pursuant to Bond Resolution No. 66-29 and any pari passu additional bonds issued in the manner provided in the proceedings which authorized their issuance.

c. After the final payment and retirement of all of the outstanding water and sewer revenue bonds, including any pari passu additional bonds issued pursuant to Bond Resolution No. 66-29, and any subordinate bonds payable from the revenues of the water and sewer system, any revenues remaining in the surplus revenue reserve fund may be used by the metropolitan government in any lawful manner. (Prior code § 40-1-6)

15.12.100 Disposition of miscellaneous revenue—Funds established.

A. The proceeds of any fees or charges made and collected for connections to the water and sewerage system shall be deposited directly in the water and sewerage development fund, which is established. There shall also be placed in the water and sewerage development fund, as they are received, all contributions in aid of construction paid by individuals or corporations under contractual agreements. The water and sewerage development fund shall be maintained in two separate accounts which shall be designated as the "water development account" and the "sewerage development account;" and tapping fees and contributions in aid of construction derived from water system operations or development shall be accounted for in the water development account and similar receipts derived from the operation or development of the sewerage system shall be accounted for in the sewerage development account.

1. The money in the water development account shall be used only for paying the cost of extensions, additions and capital improvements to, or purchasing and installing new equipment for, the water system of the metropolitan government and for making such reimbursements of excess contributions in aid of construction and of receipt from tapping fees as shall be required by contracts relating to the extension or development of the water system.

2. The money in the sewerage development account shall be used only for paying the cost of extensions, additions and capital improvements to, or purchasing and installing new equipment for, the sewerage system of the metropolitan government and for making such reimbursements of excess contributions in aid of construction and of tapping fee receipts as may be required by contracts relating to the extension or development of the sewerage system.

3. Upon the recommendation of the director and with his consent, the mayor may authorize money not needed for the purposes of one of such accounts to be used for the purposes of the other account.

4. The fund balances and the obligations of the Nashville suburban area fund and of the water main fund shall be transferred to the water development account of the water and sewerage development fund herein created, and the Nashville suburban area fund and the water main fund shall be abolished and all transactions which formerly have been accounted for through the Nashville suburban area fund and the water main fund shall be accounted for and flow through the water development account of the water and sewerage development fund.

B. The income from the investment of funds of the department of water and sewerage services, the disposition of which has not been specifically provided for by water and sewer revenue bond resolutions of the metropolitan government, shall be used to discharge the obligations of the metropolitan government to the department of water and sewerage for services not otherwise provided for, and the balance of such investment income shall be deposited in the surplus revenue reserve fund. (Prior code § 40-1-6.1)

15.12.110 Public fire protection.

The department shall furnish public fire protection to the metropolitan government and shall install and maintain the public fire hydrants. (Prior code § 40-1-20)

15.12.120 Reservoirs—Not open to public.

No person shall visit the reservoirs of the metropolitan government water supply without permission of the director. (Prior code § 40-1-23)

15.12.130 Discontinuance of service on order of owner—Exception.

If ordered by the owner of the premises or his authorized agent, in writing, the department shall shut off the water at the location designated; except, that no service will be discontinued for the sole purpose of eviction. (Prior code § 40-1-15)

15.12.140 Repairs and extensions—Authority to shut off water.

It shall be expressly agreed and understood that the department reserves the right at any time to shut off the water for the purpose of extending, replacing, repairing or cleaning mains and appurtenances, and the department shall not be liable for any damage arising therefrom. No claim shall be made against the department by reason of the breaking of any service pipe or connection. (Prior code § 40-1-16)

15.12.150 Use of fire hydrants—Permission required.

It is unlawful for any person, except an employee of the metropolitan government, to use a fire hydrant for any purpose whatsoever without the permission of the department through the director. The director may require written permission by the chief of the fire department before giving his permission, and the use of a hydrant by a metropolitan government employee must be in the performance of a duty approved by the director. (Prior code § 40-1-21)

15.12.160 Use of special hydrant wrenches.

It is unlawful for any person to use any type of wrench other than a special hydrant wrench in operating a fire hydrant. (Prior code § 40-1-22)

15.12.170 Persons owing for past services not eligible for water services.

No person or his authorized agent shall be furnished water or sewerage services at any location by the department unless such person or his authorized agent shall have paid to the department all outstanding indebtedness due the department for water consumed or sewerage services used by him previously at any other location. (Prior code § 40-1-19)

15.12.180 Consumers furnishing water to other persons prohibited.

No consumer or customer, except with the written consent of the department previously obtained, shall be allowed to furnish water to other persons or property or allow such other persons to take it themselves. Any violation of this section shall be cause for the supply to be shut off and the water rate or water and sewerage rate already paid to be forfeited. (Prior code § 40-1-18)

15.12.190 Damage resulting from pressure changes—Customer's responsibility.

Under no conditions shall the department be responsible for any damage caused to equipment within the consumer's or customer's premises by raising or lowering the pressure in the mains of the department's distribution system. It shall be incumbent upon the consumer or customer to install in his service line between the metropolitan government's main and the inside of his premises such pressure-regulating devices as may be necessary to prohibit excessive pressure from being transmitted from the metropolitan government's main to the inside of his premises. (Prior code § 40-1-17)

15.12.200 Interference with department property prohibited—Unauthorized connections—Blocking fire hydrants.

It is unlawful for any person, except an authorized employee or agent of the department, to tap, open, remove or in any way disturb or injure any of the water pipes, mains, meter cocks, meters, fireplugs or water connections, whether private or public, or other department property, or to take therefrom or waste the water thereof, or to knowingly permit any such unlawful tapping or connection to be made on his premises or on any premises in his control, or to use water from such an unauthorized connection, or in any way to prevent free

access to fire hydrants, especially the apparatus of the fire department, or stopcocks, or to deface or injure in any manner any of the houses, walls, machinery or fixtures connected with or appertaining to the water or sewerage system, or to throw or deposit any sticks, mud, rubbish or other matter in the reservoirs, basins or any storage tanks connected to the water and sewerage system. (Prior code § 40-1-14)

15.12.210 Duty of police department to report violations.

It shall be the duty of the police department to give vigilant aid to the department of water and sewerage services in the enforcement of all ordinances, rules and regulations relating to the department, and, to this end, shall report all violations thereof which come to their knowledge to the department. (Prior code § 40-1-24)

15.12.220 Right of entry when.

Properly authorized employees of the department shall have complete access to all parts of the premises of any consumer or customer at reasonable hours, for the purpose of checking the consumer's plumbing system or any other factors affecting the consumption of water or the use of sewerage services. (Prior code § 40-1-25)

15.12.230 Violations—Discontinuance of service.

Failure upon the consumer's part to comply with any of the regulations and rules of the department shall give the department the right to discontinue service, and such service shall not be re-established until the consumer has complied with all of the rules and regulations of the department pertaining to the supplying of water to the consumer. (Prior code § 40-1-26)

15.12.240 Violations—Penalties—Revocation of permits.

A. Whenever in this title, or in any rule, regulation or order promulgated by any officer or agency of the metropolitan government under authority duly vested in the officer or agency by this title, or if any act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or the doing of any act is required, or the failure to do any act is declared to be unlawful or an offense or a misdemeanor, where no specific penalty is provided therefor in this title, the violation of any such provision of this title or such rule, regulation or order, shall be punishable by fine in an amount not to exceed five hundred dollars. Each and every day such violation exists shall be deemed a separate offense.

B. In addition to any fine imposed for a violation of this title, permits granted under the provisions of this title may be revoked by the director. No new permits shall be issued to a person guilty of violating any of the provisions of this title until the work done in violation of this title shall have been corrected to the satisfaction of the director.

C. Any fine imposed for a violation of Chapters 15.04 through 15.60 shall be deposited into the revenue fund account of the department of water and sewerage services. (Amdt. 1 with Ord. 98-1048 § 1, 1998; Ord. 95-1329 § 9, 1995)

Chapter 15.16

WATER MAINS, SERVICE CONNECTIONS AND METERS

Sections:

Article I. General Regulations

15.16.010 Installation—Compliance with regulations.
15.16.020 Installation—Permit required.
15.16.030 Permits restricted to licensed plumbers when.
15.16.040 Gate valves—Regulations.

Article II. Water Mains

15.16.050 Size restrictions.
15.16.060 Pipe specifications.
15.16.070 Length restrictions.
15.16.080 Cover requirements.
15.16.090 Private mains—Installation supervised by inspector.
15.16.100 Private mains—Location—Compliance with department requirements.
15.16.110 Valves—Regulations.
15.16.120 Operation of valves—Permission required.

Article III. Service Connections, Pipes and Lines

15.16.130 Connections—By department—Permission required when.
15.16.140 Service line installations—Permitting.
15.16.150 Taps, connections and service pipes—Size restrictions.
15.16.160 Service pipes—Ditch regulations.
15.16.170 Reserved.
15.16.180 Reconnection to newly laid mains.
15.16.190 Proper connections required for water service.
15.16.200 Maintenance of service connection—Owner's and department's responsibility.
15.16.210 Continuance of service—Proper maintenance of service pipes required.
15.16.220 Failure to make timely repairs—Discontinuance of service.
15.16.230 Regulation and enforcement—Authority of director.
15.16.240 Service pipe specifications.
15.16.250 Meter specifications.
15.16.280 Curb cocks and corporation cocks restrictions.
15.16.290 Inspection required before tapping main.
15.16.300 Sprinkler connections—Valve at curb required.
15.16.310 More than one supply pipe prohibited—Exception.
15.16.320 Inspection of pipe work required.
15.16.330 Use of one ditch for sewer and water service pipes prohibited.
15.16.340 Backfilling ditches—Requirements.
15.16.350 Equipment that takes abnormal drafts from service supply line prohibited.
15.16.360 Equipment which increases pressure prohibited—Exception.

Article IV. Water Meters

15.16.370 Required.
15.16.380 Size restrictions.
15.16.390 Furnished by department—Exceptions.
15.16.400 Installation and repair.
15.16.410 Meter repairs—Owners billed when.
15.16.420 Improper meter size—Authority of director to require change.
15.16.430 Separate meters required for each premises.
15.16.440 Accessibility.
15.16.450 Meter boxes—Specifications.
15.16.460 Meter setting—Prohibited fittings.
15.16.470 Exposure of meters to cold or contamination prohibited.
15.16.480 Repair of meter—Owner's responsibility when.
15.16.490 Interference with meters prohibited.
15.16.500 Preventing employees from reading or inspecting meters prohibited.

Article I. General Regulations

15.16.010 Installation—Compliance with regulations.

All work done in connection with the installation of water mains, service pipes, meters, meter boxes and

renewal or repair of the same shall be done in the manner and in accordance with the provisions of this title. (Prior code § 40-1-28)

15.16.020 Installation—Permit required.

A permit shall be obtained from the department for the installation of all new mains, service pipes or meters or for the repair or renewal of such before the work is started. Lot numbers and name of subdivision or house number and street shall be furnished for each permit. (Prior code § 40-1-29)

15.16.030 Permits restricted to licensed plumbers when.

Permits to lay water mains, install house services, set meters, build meter boxes, etc., and to repair and renew the same shall be granted only to regular licensed plumbers who have given bond as required by the laws of the metropolitan government. (Prior code § 40-1-30)

15.16.040 Gate valves—Regulations.

A. All gate valves shall open to the right (clockwise) and shall have a two-inch square nut on top of the stem, with the exception of valves two inches and under in size, which shall have wheel control. All gate valves shall be of a kind and make specified by the department.

B. All gate valves set inside meter boxes, either ahead or after the meter, shall open to the left (counterclockwise). All such valves shall have wheel control and shall be of a kind and make specified by the department. (Prior code § 40-1-31)

Article II. Water Mains

15.16.050 Size restrictions.

No water main less than two inches in diameter may be run in any street, county road or state highway unless, in the judgment of the director, he may deem a smaller size main permissible. If a water main less than two inches is permitted, it shall supply one house only and shall be known as a long service pipe. (Prior code § 40-1-69)

15.16.060 Pipe specifications.

All water mains three inches in diameter and larger shall be of cast iron of the bell and spigot type, unless otherwise specified. Mains under three inches in diameter may be of galvanized iron pipe. (Prior code § 40-1-70)

15.16.070 Length restrictions.

The following lengths shall be the maximum permissible lengths of water mains of certain sizes:

A. Four-inch pipe shall not exceed five thousand feet, including all laterals.

B. Three-inch pipe shall not exceed two thousand five hundred feet, including all laterals.

C. Two-inch pipe shall not exceed one thousand feet, including all laterals. (Prior code § 40-1-72)

15.16.080 Cover requirements.

All water mains shall have thirty inches of cover below the finished grade of street, unless otherwise specified by the director or an authorized assistant. (Prior code § 40-1-71)

15.16.090 Private mains—Installation supervised by inspector.

All work performed in the installation of private water mains shall be done in the presence of an authorized inspector of the department. Such inspector shall be appointed by the director and shall be paid by the owner of the pipe line at the prevailing rate of pay per day or fraction thereof. (Prior code § 40-1-73)

15.16.100 Private mains—Location—Compliance with department requirements.

The department shall have the right to locate mains, to designate the location of valves and to specify the kind and make of all water main equipment that may be installed in a private water main. The director shall have the right to refuse to furnish or to discontinue the furnishing of water through any main that does not comply with the requirements of the department. (Prior code § 40-1-74)

15.16.110 Valves—Regulations.

Valves and shutoffs shall be placed on all water lines at points designated by the department, and valve boxes shall be placed over all shutoffs. All valves, shutoff cocks and valve boxes, etc., shall be of a style and make specified by the department. (Prior code § 40-1-75)

15.16.120 Operation of valves—Permission required.

No valve shall be operated except by department employees, unless permission to do so is obtained from the department. (Prior code § 40-1-76)

Article III. Service Connections, Pipes and Lines

15.16.130 Connections—By department—Permission required when.

All connections to water mains shall be made by the department unless permission is granted by the department in conjunction with contracts for lay-and-deed projects or department's capital projects. All connections are to be made in accordance with the current construction specifications of the department. (Ord. BL2006-1239 § 2, 2006; prior code § 40-1-52)

15.16.140 Service line installations—Permitting.

Guidelines for requesting water and/or sewer service shall be made available for review in the department's permits and engineering offices. (Ord. BL2006-1239 § 3, 2006; prior code § 40-1-37)

15.16.150 Taps, connections and service pipes—Size restrictions.

No tap or connection less than three-quarters of an inch shall be permitted to any main which is a part of the distribution system of the department, and the service pipe from main to meter shall not be less than three-quarters of an inch in diameter. (Prior code § 40-1-38)

15.16.160 Service pipes—Ditch regulations.

Service lines must be constructed in accordance with the department's current construction specifications and details. Guidelines for constructing water and/or sewer service lines are shall be made available for review in the department's permits office and engineering offices. (Ord. BL2006-1239 § 4, 2006; prior code § 40-1-39)

15.16.170 Reserved.

Editor's note—Ord. BL2006-1239, § 5, adopted Dec. 5, 2006, repealed § 15.16.170, which pertained to service connections across private property and derived from prior Code § 40-1-54.1. The user's attention is directed to § 15.40.120.

15.16.180 Reconnection to newly laid mains.

When existing public water mains are replaced or rehabilitated by the department, the department shall also reconnect and/or may replace any existing service line at the main and up to including the meter box. (Ord. BL2006-1239 § 6, 2006; prior code § 40-1-32)

15.16.190 Proper connections required for water service.

Any property that discharges sewage to the public sewage system must also have a potable water connection to the public water supply unless otherwise approved by the director. (Ord. BL2006-1239 § 7, 2006; prior code § 40-1-33)

15.16.200 Maintenance of service connection—Owner's and department's responsibility.

A. This section shall apply to meters with a direct service line from the main used for the purpose of measuring flow of water intended for human consumption (domestic meters) and irrigation service but not meters used for fire suppression, cooling towers, deduction or any other purposes. The department will own and maintain the portion of the water service line within the domestic or irrigation meter box as well as the meter, meter box and any fittings within the meter boxes. The portion of the water service line from the public main to the domestic/irrigation meter box shall be owned and maintained by the department where such meter is located within or at the public right-of-way. If the meter is located in any other location outside the public right-of-way, the department will only own and maintain the portion of water service line inside the right-of-way with the remainder of service line owned and maintained by the property owner.

B. The property owner will own, maintain and operate the portion of water service from the meter box to the structure served. The property owner also will own, maintain and operate all required backflow prevention and pressure reducing devices on the customer side of the meter.

C. In accordance with the purchasing code and regulations, the director shall have discretion to solicit and, on behalf of the metropolitan government, enter into a contract with one or more qualified service providers to offer private service line insurance to customers of the department. Any such contract shall require that the costs of private service line insurance shall be borne by customers who elect to purchase the insurance and not by the department. No customer shall be required to purchase service line insurance as a condition to receiving water or sewer service. (Ord. BL2015-1213 § 2, 2015; Amdt. 1 to Ord. BL2012-333 § 2, 2013; Ord. BL2012-333 §§ 2, 3, 2013; Ord. BL2006-1239 § 8, 2006; prior code § 40-1-34)

15.16.210 Continuance of service—Proper maintenance of service pipes required.

After the initial service shall have been established, all future supplying of water or sewerage services or future renewals of service shall be contingent upon the

owner's maintaining his service lines at his own expense in a condition that is in compliance with the regulations and rules of the department. Failure to comply with this requirement shall result in the disconnection of water service. (Ord. BL2006-1239 § 9, 2006; prior code § 40-1-35)

15.16.220 Failure to make timely repairs—Discontinuance of service.

Should a consumer or customer fail to repair his service line within the prescribed time when notified by the department that repairs are needed, the department may shut off the water and recover any related expense incurred. Service will not be reinstated until such time as corrective action has been taken to the satisfaction of the department and all related expenses have been paid. (Ord. BL2006-1239 § 10, 2006; prior code § 40-1-36)

15.16.230 Regulation and enforcement—Authority of director.

The director is authorized and directed to promulgate and enforce such rules and regulations as he may deem necessary for the enforcement of this chapter and for the safe, economical and efficient management, control and protection of the government's public water system. (Ord. BL2006-1239 § 11, 2006; prior code § 40-1-51)

15.16.240 Service pipe specifications.

A. All water service pipes three inches in diameter and under shall be copper from the main to the water meter. For pipes less than two inches in diameter, the copper pipe must be Type K, and for pipes between two inches and three inches in diameter the copper must be Type L.

B. All service pipes larger than three inches in diameter must be ductile iron material with a minimum rating of Class 52 in accordance with the American Waterworks Association specifications.

C. All copper pipe used in the installation of service pipes shall be of Type K copper and of the following dimensions:

Inside diameter	Outside diameter
1-inch	1.125-inch
¾-inch	.875-inch

(Ord. BL2002-1167 §§ 1—5, 2002; prior code § 40-1-43)

15.16.250 Meter specifications.

Meters installed in service lines shall be of a kind and make as may be specified by the department and all other equipment and materials used in the installation of a service line shall be those approved by the department. (Prior code § 40-1-47)

15.16.280 Curb cocks and corporation cocks restrictions.

Only those curb cocks and corporation cocks specified and handled by the department shall be used by the plumber in the installation of service pipes. (Prior code § 40-1-46)

15.16.290 Inspection required before tapping main.

Approved pipe for connection to the public water system shall be on the job site ready for inspection before any tap to the main shall be made by the department. This shall apply to run-to-curb connections and connections on which no meter is set at the time service is run from the main to within the curb line. (Ord. BL2002-1167 § 8, 2002; prior code § 40-1-49)

15.16.300 Sprinkler connections—Valve at curb required.

Sprinkler connections shall have a valve located in the sidewalk at the curb, regardless of whether such connection to the main is made with a tapping sleeve and valve or tee. This valve shall be of the same type and make as used by the department in the distribution system. (Prior code § 40-1-50)

15.16.310 More than one supply pipe prohibited—Exception.

In metering water consumers and customers, no premises shall be permitted to have more than one supply pipe, except with and by the consent of the director. Where any premises is found to have more than one supply pipe, except where the consent of the director has been obtained, the owner, legal agent or lessee of the premises shall be required to connect the water supply pipes so as to necessitate the use of but one meter, or the owner, lessee or agent shall, without expense to the metropolitan government, supply meters for each additional pipe exceeding one. Upon failure of the owner, lessee or agent to comply with these provisions, the director shall sever, without further notice, all water supply pipes entering the premises in excess of the one metered. (Prior code § 40-1-48)

15.16.320 Inspection of pipe work required.

All pipe work shall be inspected by an authorized inspector of the department, and no work may be taken to be completed until passed on by the inspector. If the inspector shall fail to approve the work, he shall notify the plumber, setting forth the changes to be made. The

plumber shall be given three days to make his work satisfactory, and if he does not make the same satisfactory, the department may refuse to issue any permits to the plumber until the rejected work has been made satisfactory to the department. (Prior code § 40-1-42)

15.16.330 Use of one ditch for sewer and water service pipes prohibited.

The ditch excavated for water service pipes shall be used for water service pipe only. No sewer shall be installed in the same ditch with water service pipes. Sewerage service and water service pipes shall be kept at least three feet apart. (Prior code § 40-1-40)

15.16.340 Backfilling ditches—Requirements.

In backfilling the service pipe ditch, a tamper shall be used, and all dirt replaced in the trench shall be thoroughly tamped so as to leave the street in first-class condition. (Prior code § 40-1-41)

15.16.350 Equipment that takes abnormal drafts from service supply line prohibited.

The owner of any premises or the consumer or customer occupying same shall not install any apparatus or any equipment directly to the service supply line from the metropolitan government's main which might take an abnormal draft therefrom. The existence of such apparatus or piece of equipment shall be sufficient reason for the department to discontinue service to the premises in question upon failure of the consumer, customer, owner or occupant to discontinue the use of such apparatus or equipment after five days' written notice has been given by the department. (Prior code § 40-1-53)

15.16.360 Equipment which increases pressure prohibited—Exception.

No apparatus or equipment shall be directly connected to the service supply line from the metropolitan government's main which might raise the pressure on the metropolitan government's main unless the owner of the premises provides the proper means of preventing such pressure from being transmitted to the metropolitan government's main. The department shall in no manner be liable for any excess pressure on its mains, whether such pressure is caused by privately owned equipment or otherwise. (Prior code § 40-1-54)

Article IV. Water Meters

15.16.370 Required.

All water service connections, unless otherwise specified in this title, shall be metered with a meter of such size and make as may be approved by the director. Unless otherwise approved in writing by the director for good cause shown, every meter and the portion of every service line connecting such meter to a public main shall be located within the public right-of-way or in a dedicated easement. For meters and connecting service line segments located other than in the public right-of-way or dedicated easement, every customer served by such meter shall, as a condition of receiving service, be deemed to have (i) granted to the department and its employees and contractors the right at all reasonable times to access, read, repair, maintain, and replace the meter and connecting service line and any associated fixtures or fittings for which the department is responsible; and (ii) waived any claim against the metropolitan government for damages relating to the exercise of such right using reasonable care. (Ord. BL2022-1580 § 1, 2023; prior code § 40-1-55)

15.16.380 Size restrictions.

No single meter shall be permitted larger than two inches in size, unless, in the judgment of the director, a larger single meter is justified. Larger connections shall be made in batteries of two-inch, three-inch or four-inch meters as may be required by the department. The director may require a battery of one-inch meters on a two-inch service. When setting a battery of meters, a gate valve shall be installed on each side of each meter within the meter box. (Prior code § 40-1-62)

15.16.390 Furnished by department—Exceptions.

Meters one inch or less in size shall be furnished by the department for installation on residential domestic service connections of consumers or customers. All meters above one inch in size shall be furnished by the consumer or customer. (Ord. BL2015-1057 § 1, 2015; prior code § 40-1-56)

15.16.400 Installation and repair.

The installation, except on new service installations, repair and disconnection of all water meters shall be performed by employees of the department only. All meters above one inch in size shall be maintained by the department at the expense of the consumers or customers. The department shall have the right at any time to remove and repair a defective meter. (Prior code § 40-1-57)

15.16.410 Meter repairs—Owners billed when.

A. When any water meter larger than one inch in size is repaired by the department for any person, the cost of such repairs shall be billed by the billing and assessment division of the department and entered as a charge against such person in the same manner as assessments for water are entered. All money derived from such meter repairs shall be placed to the credit of the general ledger account of the department's miscellaneous refunds. The department shall have authority to expend, out of such miscellaneous refunds, upon properly executed vouchers, such sums as may be deemed necessary in the operation, maintenance and expansion of the department.

B. The cost of labor and materials in connection with such repairs shall be billed with the next regular billing for water consumed and shall become due and payable at the same time the bill for water is due. Failure to pay such cost of meter repairs within thirty days shall give the department the right to discontinue service to the location supplied by the meter which was repaired. (Prior code § 40-1-58)

15.16.420 Improper meter size—Authority of director to require change.

Whenever, in the judgment of the department, a meter or connection is found to be too large to register accurately the amount of water consumed, or is too small to withstand the demand made upon the meter, the director may require, upon service of a ten-day notice, that the owner or agent reduce or enlarge the size of the meter or connection or both, and upon failure of the owner, agent, consumer or customer to comply with these requirements, the water may be turned off and shall not be turned on until full compliance has been made with all regulations and rules of the department pertaining to the supplying of water to consumers. (Prior code § 40-1-63)

15.16.430 Separate meters required for each premises.

A. Every consumer and every customer shall have a separate meter for his premises. No pipes shall cross from one lot or yard to another.

B. All single residences or residences in one enclosure and not classed as tenement property shall be required to have a separate and distinct connection to the metropolitan government's main. Wherever there shall be found more than one house supplied from one pipe without the permission of the director, the department shall have the water turned off immediately, and the same shall not be turned back on until separate connections have been made. Under no circumstances shall there be more than one service connection made to any one house or premises without the permission of the director. (Prior code § 40-1-64)

15.16.440 Accessibility.

Water meters shall at all times be easily accessible so that they may be examined and read by employees of the department. (Prior code § 40-1-65)

15.16.450 Meter boxes—Specifications.

Meter boxes shall be built of whole brick and shall have concrete bottoms. The mortar used shall be one part cement and two parts sand. The dimensions of the box shall conform to the standard frame and plate, drawings of which are on file in the office of the director. The plate and frame shall be cemented on top of box. The depth from the top of the box to the top of the service pipe shall be two feet, and the top of the box shall be level with the ground or sidewalk. The box shall be plumb, straight and square with the street. (Prior code § 40-1-60)

15.16.460 Meter setting—Prohibited fittings.

In setting the meter, a brick shall be placed crosswise on the bottom of box for the meter to rest on. The regulation curb cock shall be placed in front of the meter, and no ells, tees or other fittings shall be used between the curb cock and the meter other than necessary bushings to connect the meter to the curb cock and to connect the outlet side of the meter to the part of the service continuing on into the premises. (Prior code § 40-1-61)

15.16.470 Exposure of meters to cold or contamination prohibited.

Meters must not be exposed to danger from freezing or contamination. It is unlawful to cover or obstruct any water meter either permanently or temporarily. (Prior code § 40-1-66)

15.16.480 Repair of meter—Owner's responsibility when.

If meters are damaged by freezing, hot water, etc., either by carelessness or neglect of the owner or occupant of the premises or their agents, the owners or occupants shall pay for the repairs of such damages, but the cost of ordinary maintenance of meters one inch in size and smaller shall be borne by the department. Such damage shall be billed to the consumer or customer with his regular water bill and shall be due and payable at the same time as the water bill. Failure to pay for such repairs shall be deemed good and sufficient reason for

the department to discontinue service and not restore the same until the consumer or customer has complied with all the regulations and rules of the department pertaining to the supplying of water to consumers. (Prior code § 40-1-59)

15.16.490 Interference with meters prohibited.

It is unlawful for any person, except a duly authorized employee of the department, to interfere with any meter used for the measurement of water. (Prior code § 40-1-67)

15.16.500 Preventing employees from reading or inspecting meters prohibited.

It is unlawful for any person to hinder or prevent a regularly authorized employee of the department from inspecting or reading a meter for the measurement of water furnished by the department. (Prior code § 40-1-68)

Chapter 15.20

WATER MAIN TAPPING FEES AND CHARGES

Sections:

15.20.010	**Applicability of chapter.**
15.20.020	**Extensions—Property of metropolitan government.**
15.20.030	**Tapping fees—Schedule.**
15.20.040	**Tapping fees—Applicable when.**
15.20.045	**[Water system capacity charge.]**
15.20.050	**Payment—Installment plan—Delinquent accounts.**
15.20.060	**Unpaid fees—Lien on property.**
15.20.070	**Frontage defined.**
15.20.080	**Intermediate mains—Financed by developer—Reimbursement.**
15.20.090	**Oversize mains.**
15.20.100	**Reimbursements.**
15.20.110	**Plan and permit review—Schedule of charges.**

15.20.010 Applicability of chapter.

The provisions of this chapter shall apply to all customers desiring or required to connect to the water mains of the distribution system of the department. (Prior code § 40-1-91)

15.20.020 Extensions—Property of metropolitan government.

All water main extensions shall be installed in accordance with the regulations of the department, and shall become a part of the metropolitan water distribution system and the property of the metropolitan government. (Prior code § 40-1-100)

15.20.030 Tapping fees—Schedule.

A. Except as herein provided, all persons desiring or required to connect to the water distribution system shall pay for the privilege of tapping or connecting to the water main a tapping fee for each connection as follows:

Tap size (inches)	Fee ($)
⅝	500.00
¾	525.00
1	550.00
2	1,300.00
3	2,000.00
4	3,200.00
6	5,500.00
8	8,500.00
10	11,000.00
12	11,000.00

B. Those persons who have legally obligated themselves to make a connection to the water or sewerage system of the metropolitan government within sixty days prior to April 18, 1973, shall be charged the tapping fee as provided in the original Ordinance No. 65-412. Proof of such legal obligation to make such connection shall be made to the satisfaction of the director of water and sewerage services and the director of law, and shall include sworn affidavits by the person for whom said connection was obligated to be made and by the contractor who contracted to make such connection. (Ord. BL2019-45 § 1, 2019; Ord. BL2007-1457 § 5, 2007; prior code § 40-1-92)

15.20.040 Tapping fees—Applicable when.

Customers desiring to renew water service utilizing an existing water tap, or utilizing a new service line which will replace an existing service line and is no larger than that service line which it will replace shall not be required to pay the tapping fees established in this chapter. Customers desiring to renew a water service line and to increase the size of the tap to the main shall pay a tapping fee based upon the difference between the tapping fee for the size of the existing tap and the tapping fee for the size of the proposed tap to the main. (Prior code § 40-1-99)

15.20.045 [Water system capacity charge.]

A. Notwithstanding any other provision of the Metropolitan Code of Laws to the contrary, there is established a capacity charge of one thousand three hundred seventy-five dollars per unit of flow on all new connections to the public water supply system. This capacity charge shall be distinguished from and collected in addition to applicable tap fees. An increase in water use of ten percent or more through an existing connection, as compared to average flow measured during the previous three years, shall be considered a new connection for purposes of this section.

B. For purposes of this section, "unit of flow" shall mean three hundred fifty gallons per day expected average usage.

C. Except in cases covered by Section 15.20.050 of the Metropolitan Code of Laws, all charges established under this section shall be due and payable prior to the issuance of a permit for service connection to the public

water supply system. (Ord. BL2019-45 § 2, 2019; Ord. BL2009-407 § 1, 2009; Ord. BL2008-215 §§ 1, 2, 2008; Ord. BL2007-1457 § 7, 2007; Amdt. 2 to Ord. BL2006-1095 § 2, 2006; Ord. BL2006-1095 § 2, 2006)

15.20.050 Payment—Installment plan—Delinquent accounts.

A. The director of the department of water and sewerage services and director of finance are authorized to establish a system of partial payments for tapping and capacity charges created by this chapter for customers using connections to the public water system no larger than one and one-half inches and with expected usage averaging five thousand gallons per day or less. Eligible customers shall be allowed to make payment in thirty-six equal monthly installments, without interest, from the date of connection. Upon request, the director shall review the account of each eligible customer on or about the first anniversary of the establishment of the account to determine the customer's actual capacity requirement. In the event that the actual capacity requirement differs by ten percent or more from the capacity estimate used at establishment of the account to determine the capacity charge created by this chapter, the director shall refund to or collect from the customer, as appropriate, the difference between the capacity charge previously paid by the customer and the capacity charge calculated on the customer's actual capacity requirement. The director further shall amend the terms of any payment plan contemplated in this section as necessary to cause the total capacity charge paid by an eligible customer to be based on the customer's actual capacity requirement. A copy of this section of the Metropolitan Code shall be made available to any customer entering into a payment plan hereunder. This section shall not apply to single-family residential developments or to combined single-family and commercial developments.

B. The director of the department of water and sewerage services is authorized to discontinue water service to any parcel of property when any installment payment due under this chapter shall become delinquent. (Ord. BL2009-407 § 2, 2009; Ord. BL2008-215 §§ 3, 4, 2008; prior code § 40-1-93)

15.20.060 Unpaid fees—Lien on property.

Tapping and capacity fees specified in this chapter shall constitute a lien against the property served, which lien shall run with the property. The Metropolitan Government may enforce the lien against the property involved as prescribed by law. (Ord. BL2008-215 § 5, 2008; prior code § 40-1-94)

15.20.070 Frontage defined.

"Frontage" shall be defined as that boundary of a parcel of land abutting on an accessible water main, or in the event the main is both accessible to the front and side of land, the property owner may elect to tap either main at a fee determined by the feet of frontage of the lot to be supplied, or the lesser dimension of such lot. The front of a parcel of land shall normally be determined as that boundary towards which the front or main entrance of building thereupon faces. (Prior code § 40-1-95)

15.20.080 Intermediate mains—Financed by developer—Reimbursement.

When property is isolated or remotely located from the nearest accessible water main, the director may require the developer or applicant for a main to finance also the necessary run of intermediate or connecting main; however, the person financing such a section of main shall be reimbursed annually at the end of the fiscal year from proceeds from the sale of tapping privileges by the department in accordance with the schedule of fees established herein to subsequent subscribers on such connecting main until such developer or applicant has been reimbursed the actual established cost of such connecting main, or for a period of fifteen years, whichever occurs sooner. (Prior code § 40-1-96)

15.20.090 Oversize mains.

A. The foregoing provisions are based on a six-inch water main, which size main is generally accepted as the minimum size required to supply fire hydrants under requirements for proper fire protection; however, in the case of subdivisions which may be located in a relatively isolated section, or of large industrial plants or similar types of water users, it may become necessary to install or extend mains larger than six inches in size to take care of the water needs for such a particular user.

B. Therefore, in view of this, the director is authorized to negotiate and enter into an equitable agreement with such prospective customer and subsequent customers of this classification, taking into consideration the volume of water to be used and the revenue to be derived from the sale of water to such user, all to be done in conformity with the intent of this chapter; that is, that the customer be required to bear equitably the expense of the water distribution facilities necessary to supply his property. (Prior code § 40-1-97)

15.20.100 Reimbursements.

A. Any reimbursements which may be due under the provisions of Sections 15.20.080 and 15.20.090 shall be made annually at the end of the fiscal year. Such reimbursements are authorized to be made from the water and sewerage development fund.

B. Refunds to the original owners of water mains acquired by the former city which owners have retained original tap sales rights when the mains were acquired by the former city shall be reimbursed from the water and sewerage development fund in accordance with their agreement with the former city and the applicable ordinances and resolutions of the former city. (Prior code § 40-1-98)

15.20.110 Plan and permit review—Schedule of charges.

The department shall develop and implement a schedule of charges to recover the actual costs of services provided in determining water and sewer service availability, reviewing permit applications, reviewing plans submitted by private entities, or similar services for proposed new connections to the public water or sewer systems intended to serve any use other than one single family residence. The schedule of charges shall reflect the Department's actual costs incurred in providing such services. A copy of the schedule of charges shall be filed with the metropolitan clerk, furnished to each member of the metropolitan council and made available on request to any citizen of Davidson County. The department shall bill and collect in accordance with the schedule of charges, which may be amended from time to time to reflect changes in the department's actual costs of providing the services contemplated herein. (Ord. BL2019-45 § 3, 2019; Ord. BL2007-1457 § 6, 2007)

Chapter 15.24

SPRINKLER SYSTEMS FOR FIRE PROTECTION

Sections:

15.24.010 Private fire protection—Authority of department.
15.24.020 Automatic sprinkler systems—Connections to water supply.
15.24.030 Size of connections—Discretion of director.
15.24.040 Meters—Required when.
15.24.050 Unmetered connections—Permit required.
15.24.060 Unmetered connections—Bond required—Sworn statement of water use.
15.24.070 Unmetered connections—Failure to file bond or statement—Discontinuance of service.
15.24.080 Unmetered connections—Inspections.
15.24.090 Bond requirements.
15.24.100 Application—Approval by board of underwriters.
15.24.110 Application—Drawings of fire protection system.
15.24.120 Gate or control valves required.
15.24.130 Breaking of drain valve seals prohibited—Exception.
15.24.140 Compliance with department requirements.
15.24.150 Readiness to serve charge.

15.24.010 Private fire protection—Authority of department.

The department shall have authority to render a special service to private property for private fire protection purposes. (Prior code § 40-1-77)

15.24.020 Automatic sprinkler systems—Connections to water supply.

All persons who may desire to install automatic sprinkler systems for fire protection and to put in connections to the water mains of the metropolitan government for supplying water for fire protection through such automatic sprinkler systems shall be permitted to have such connections. All persons who have, at any time heretofore, installed automatic sprinkler systems for fire protection and have put in connections to the water mains of the metropolitan government for supplying water for fire protection through such automatic sprinkler systems shall be permitted to maintain such connections, subject to the provisions of this chapter. (Prior code § 40-1-78)

15.24.030 Size of connections—Discretion of director.

Connections shall not be larger than six inches in diameter of connecting pipe; provided, that buildings of small size or having a ground floor area of four thousand square feet or less may, at the discretion of the director, be limited to a connection of four inches in diameter; provided further, that exceptionally large buildings, situated in isolated locations, may have connections as large as eight inches in diameter, at the discretion of the director. (Prior code § 40-1-79)

15.24.040 Meters—Required when.

A meter of the same size as the tap shall be installed in all cases where the connection made is used or is to be used for any purpose whatsoever, except for testing and except for extinguishment of fires; provided, however, that tanks connected to the automatic sprinkler system may be filled through the connection if and when the tank-filling pipe or bypass is provided with a meter approved by the director. Meters to measure water for tank-filling purposes shall be of the same size as the filling pipe or bypass; provided, that in large plants having complicated yard main system with private fire hydrants, meters may be required, at the discretion of the director; provided further, that in automatic sprinkler equipments not supplied with an alarm attachment, located in the base of each sprinkler riser, designed to ring a fire alarm gong inside or outside of the premises, a meter of the same size as the connection may be required, at the discretion of the director. (Prior code § 40-1-80)

15.24.050 Unmetered connections—Permit required.

No unmetered connection for an automatic sprinkler system shall be made with any mains of the metropolitan government until a permit shall have been obtained from the department. Any such connection shall be made only by persons authorized by law and under the supervision of the director. (Prior code § 40-1-81)

15.24.060 Unmetered connections—Bond required—Sworn statement of water use.

Any person granted a permit to make an unmetered connection for an automatic sprinkler system shall, with the filing of the bond required by this division and each renewal thereof, file a written statement, signed and

sworn to, that the water supply has not been, and will not be, used for any other purpose than fire protection, and that there has not been, and will not be, made any attachment to any of the pipes connected with the automatic sprinkler system by which water could be diverted therefrom. Such written, signed and sworn statement shall also give the number of sprinkler heads on the entire system, and shall describe leaks, if any have occurred, and the length of time before the same were repaired. (Prior code § 40-1-82)

15.24.070 Unmetered connections—Failure to file bond or statement—Discontinuance of service.

On failure to execute any renewal bond or to file with any renewal bond the written, signed and sworn statement required by Section 15.24.060, the department shall have the right to cause the connection to the automatic sprinkler system to be shut off at once. (Prior code § 40-1-83)

15.24.080 Unmetered connections—Inspections.

A. The director shall have authority to make, or cause to be made, frequent inspections of all unmetered connections supplying water to automatic sprinkler systems and of all piping connected therewith. The director shall have the right to go upon the premises wherever and whenever any unmetered connections shall have been made, for the purpose of such inspection, and any employee of the metropolitan government working under his direction shall have such right.

B. It is unlawful for any property holder or owner or occupant of premises where any such unmetered connections shall have been made to refuse to permit such inspection by the director or his agent or to obstruct the director or his agent in the making of such inspection. (Prior code § 40-1-84)

15.24.090 Bond requirements.

All persons desiring to install automatic sprinkler systems for fire protection and to put in unmetered connections to the water mains of the metropolitan government for supplying water for fire protection through such automatic sprinkler systems shall, before making such connections, make application for a permit to the department and file with the department a bond, with some bonding or surety company authorized to transact business in the state as surety thereon, or a personal bond with two or more solvent sureties, to the metropolitan government, in the sum of one thousand dollars, to be approved by the metropolitan attorney, and conditioned to pay any fines that may be imposed for failure to comply with, or for violation of, any of the provisions of this chapter, and to pay for any water lost by leakage and any water consumed for any purpose other than fire protection. Such bond shall be for two years and shall be renewed for a like period at each expiration. The bond may at any time, at the discretion of the director, be declared forfeited for any wilful or intentional diversion of water to any purpose other than fire protection. (Prior code § 40-1-87)

15.24.100 Application—Approval by board of underwriters.

The application to the department for private fire protection shall be upon a form to be furnished by the director of the department and shall be countersigned by an authorized officer or agent of the board of underwriters that this size connection is required. (Prior code § 40-1-88)

15.24.110 Application—Drawings of fire protection system.

The applicant for private fire protection service shall furnish the department with the application for such service, a complete and correct drawing, or set of drawings, showing the location of the premises to be supplied, together with the location of all valves, pipes, hydrants, tanks, sprinkler heads and other appurtenances on the premises to be supplied. Such plans shall remain the property of the department. The applicant shall also furnish the department with drawings showing revisions to piping or appurtenances whenever same are made. (Prior code § 40-1-89)

15.24.120 Gate or control valves required.

In all connections to automatic sprinkler systems for fire protection, there shall be installed such gate or control valves as may be specified by the director. (Prior code § 40-1-86)

15.24.130 Breaking of drain valve seals prohibited—Exception.

A. All drain valves located below the alarm attachment shall be sealed shut. Except in emergency cases, seals shall not be broken without permission of the department. If seals are broken in an emergency and whenever the seal on any valve or drain has been broken, the owner shall notify the department at once so that they may be resealed.

B. Frequent breaking of seals without permission shall be cause for the director to require the immediate installation of a meter approved by him. (Prior code § 40-1-85)

15.24.140 Compliance with department requirements.

All fire service connections shall be installed in accordance with the requirements of the department. (Prior code § 40-1-90)

15.24.150 Readiness to serve charge.

Notwithstanding any other provision of the Metropolitan Code of Laws, the department shall bill and collect from any customer with a private fire protection service connection a monthly readiness-to-serve charge. The charge shall reflect the department's actual costs incurred in providing such service. A written statement of the charge as determined by the department shall be filed with the metropolitan clerk, furnished to each member of the metropolitan council and made available on request to any citizen of Davidson County. The charge may be increased or decreased from time to time upon written notice to the metropolitan clerk and each member of the metropolitan council to reflect changes in the department's actual costs of providing the service contemplated herein. (Ord. BL2007-1457 § 4, 2007)

Chapter 15.28

WATER USE RESTRICTIONS

Sections:

15.28.010	**Authority of director to impose prohibition.**
15.28.020	**Wasting water—Unlawful acts.**
15.28.040	**Wasting water—Order to abate.**
15.28.050	**Failure to comply—Disconnection of service.**

15.28.010 Authority of director to impose prohibition.

Whenever the condition of the water supply system shall, in the opinion of the director, render it prudent and necessary for the public safety and welfare, to prohibit the use of water for the purposes of sprinkling with hose and wagons or use for elevators, the director may make an order of prohibition, publishing the same in one or more of the daily papers, and it is unlawful to use water for the purpose specified above until such order of prohibition is rescinded. (Prior code § 40-1-173)

15.28.020 Wasting water—Unlawful acts.

It is unlawful for any person to wilfully and maliciously open a faucet, break pipes or otherwise waste water furnished by the department. (Prior code § 40-1-169)

15.28.040 Wasting water—Order to abate.

Irrespective of whether or not a consumer or customer is willing to pay for all of the water and sewerage services registered by the meter to his service line, he may be required by the department to discontinue any useless waste of water that is caused by permitting faucets to run continuously or failure to properly maintain the plumbing within his premises.

The foregoing to the contrary notwithstanding, a person in a residential dwelling shall not be prohibited from permitting water to drip continuously from any hydrant, water cock or other fixture during freezing weather in order to prevent the freezing or bursting of a water pipe or other fixture. (Ord. 95-1513 § 2, 1995; prior code § 40-1-171)

15.28.050 Failure to comply—Disconnection of service.

Failure to comply with the provisions of this chapter in regard to eliminating waste may be considered by the department as a breach of contract on the consumer's part, and the department shall have the right to discontinue service to the location covered by the contract within five days after written or printed notice has been left with the occupant of the location. In case of a large and unusual waste of water due to a large leak or other cause on any part of the consumer's service connection and plumbing within the premises, the department shall have the right to cut the water off immediately and shall not reestablish service until the owner or consumer has complied with all the regulations and rules of the department governing the supplying of water to consumers. (Prior code § 40-1-172)

Chapter 15.32

WATER RATES AND CHARGES

Sections:

15.32.010 **Classes of customers designated.**
15.32.020 **Monthly meter rates.**
15.32.030 **Metered sprinkler system—Minimum annual charge.**
15.32.040 **[Reserved.]**
15.32.050 **Miscellaneous water uses—Rates.**
15.32.060 **Miscellaneous water uses—Water supply—Conditions of use.**
15.32.070 **Tenement property—Classification.**
15.32.080 **Tenement property—Rate assessment—Billing.**
15.32.100 **Tenement property—Service connections.**
15.32.110 **Apartment complexes—Separate connections permitted when.**
15.32.120 **Reserved.**
15.32.130 **Reserved.**
15.32.140 **Reserved.**
15.32.150 **Free water—Modification of rates.**
15.32.160 **Unmetered automatic sprinkler systems—Monthly service charge.**
15.32.170 **Private fire hydrants.**
15.32.180 **Water for construction purposes—Paid for by owner.**
15.32.190 **Computation of net and gross billing.**
15.32.200 **Using water without paying—Unlawful.**
15.32.210 **Reports of water division.**

15.32.010 Classes of customers designated.

There shall be two classes of customers for water service. There shall be a residential class, comprising properties with one or two housing units receiving domestic water service through one meter. All other water customers shall be classified as non-residential. (Ord. BL2019-45 § 4, 2019; Amdts. 1, 2 to Ord. BL2005-922 § 1, 2006; Ord. BL2005-922 § 1, 2006; Ord. 90-1385 § 6 (part), 1990; prior code § 40-1-137)

15.32.020 Monthly meter rates.

A. For the years beginning January 1, 2020 through January 1, 2024, every customer receiving water service from the department shall pay a fixed monthly service charge based on meter size as provided in Table 15.32.020(a) and a monthly water usage charge as provided in Table 15.32.020(b).

Table 15.32.020(a) — Meter Charge

Meter Size (inches)	*Monthly Service Charge ($)*				
	Year 2020	*Year 2021*	*Year 2022*	*Year 2023*	*Year 2024*
⅝	5.09	5.30	5.45	5.62	5.79
¾	12.12	12.61	12.98	13.37	13.78
1	15.28	15.89	16.36	16.86	17.36
1.5	26.85	27.92	28.76	29.62	30.51
2	37.91	39.42	40.61	41.82	43.08
3	60.58	63.01	64.90	66.84	68.85
4	137.72	143.23	147.53	151.95	156.51
6	171.93	178.81	184.18	189.70	198.39
8 and 10	223.72	232.67	239.65	246.84	254.24

Table 15.32.020(b) — Water Usage Charge

Residential Usage (ccf):

	Charge Per CCF ($)				
	Year 2020	*Year 2021*	*Year 2022*	*Year 2023*	*Year 2024*
0—2	—	—	—	—	—
2—6	3.50	3.64	3.75	3.86	3.98
6—10	4.20	4.37	4.50	4.64	4.78
More than 10	5.25	5.46	5.63	5.80	5.97

Non-Residential Usage (ccf):

	Charge Per CCF ($)				
	Year 2020	*Year 2021*	*Year 2022*	*Year 2023*	*Year 2024*
0—2	—	—	—	—	—
More than 2	2.75	2.86	2.95	3.04	3.13

B. The rates provided in Table 15.32.020(a) and 15.32.020(b) shall be adjusted on January 1, 2025 and on January 1 of each succeeding year by the greater of (a) a percentage equal to the percentage change in the CPI Urban Index (CPI-U) over the preceding year and (b) 2%, unless the change in the CPI-U is negative, in which case there shall be no change for that calendar year. Notice of the annual adjustments to begin on January 1, 2025, shall be provided to each member of the metropolitan council, published on the metropolitan government's website and made available to the public in the metropolitan clerk's office at least thirty days before an adjustment goes into effect. Not later than the seventh anniversary of the effective date of this ordinance,

and at least every seven years thereafter, the department shall engage a qualified consultant to perform a rate study and analysis to confirm the department's costs in providing services and determine whether the rates then in effect are fair and reasonable. A copy of such studies shall be provided to each member of the metropolitan council, published on the metropolitan government's website and made available to the public in the metropolitan clerk's office. (Amdt. A to Ord. BL2019-45 § 5, 2019; Ord. BL2019-45 § 5, 2019; Ord. BL2009-407 § 3, 2009; Ord. 99-1502 § 1, 1999)

15.32.030 Metered sprinkler system—Minimum annual charge.

A minimum charge of one hundred sixty-three dollars and fifty cents effective January 1, 1991, one hundred seventy-three dollars and thirty-two cents effective January 1, 1992 and one hundred eighty-three dollars and seventy-one cents effective January 1, 1993, per year shall be made for each metered fire and sprinkler system. (Ord. 90-1385 § 5, 1990; prior code § 40-1-145)

15.32.040 [Reserved.]

15.32.050 Miscellaneous water uses—Rates.

Whenever possible, the miscellaneous water users, who obtain water from fire hydrants, will use meters with approved back-flow devices. They will be billed for the metered flow plus the cost, including overhead, to install and remove the meter. Approved unmetered service will be billed at the estimated volume. Unapproved usage will be prosecuted under applicable local and state laws. (Ord. 92-469 § 3, 1992)

15.32.060 Miscellaneous water uses—Water supply—Conditions of use.

The furnishing of water covered by miscellaneous rates may be from any source within the distribution system that may be approved by the director, and any special conditions not covered by the regulations may be provided for by the director for each particular case. Any charges incidental to supplying water under such conditions may be arrived at by metering the supply and applying the regular meter rates, or the quantity of consumption may be estimated as equitably as possible and billed at the regular meter rates in case there is no other coverage by the miscellaneous rate schedule. Other charges incidental to furnishing water under such special conditions shall be billed to the consumer in addition to the charge for water at actual cost to the department. (Prior code § 40-1-140)

15.32.070 Tenement property—Classification.

A. Tenement property shall be classified as any dwelling, store or place of business fronting on a street or alley and which is located upon an unsubdivided or continuous plot of ground, or a group of such dwellings, stores or places of business fronting on a street or alley which are located upon an unsubdivided or continuous plot of ground, in which are located two or more tenants supplied with water from a single meter; provided, that the following shall not be classified as tenement property:

1. Large office buildings or similar establishments;

2. Hotels or private homes in which the owner or lessee resides and rents out housekeeping apartments, not to exceed two apartments, exclusive of the owner or lessee's living quarters.

B. In the event there should be any controversy as to definition of the words "tenement property" and "tenant," the proper officials of the department, together with the metropolitan attorney, shall have the right to define the proper application of the terms in each case. (Prior code § 40-1-146)

15.32.080 Tenement property—Rate assessment—Billing.

Where water is supplied to tenement property by the department, an established minimum rate shall be assessed for each tenant thereon, and the total amount thereof shall be charged to the owner or his authorized agent. (Prior code § 40-1-147)

15.32.100 Tenement property—Service connections.

Tenement property may be supplied by one meter and one service connection, but the director shall have the right at his discretion to permit a dwelling, store or place of business to be supplied with a separate meter without a separate service line, or he may require with each separate meter a separate service connection from the metropolitan government's main; provided, that the occupancy of such a dwelling, store or place of business shall be dependent upon the use of water and that the occupants of such premises do not have ready or reasonable access to another water supply in the event it should become necessary for the department to discontinue service to such premises for the nonpayment of a bill. (Prior code § 40-1-149)

15.32.110 Apartment complexes—Separate connections permitted when.

Any owner of an apartment complex of fifteen units or less, which are contained in one structure or series of structures, shall be allowed to install separate waterlines

and water meters at the owner's expense to each individual unit. Further, said owner shall post a bond with the department in the amount of one year's estimated revenue from said waterline for each waterline and meter installed. Said bond shall be held by the department and shall be used to pay any deficiencies for revenues due and payable to the water and sewer department from said waterlines. (Prior code § 40-1-149.1)

15.32.120 Reserved.

Editor's note—Ord. BL2012-333, § 4, adopted Feb. 5, 2013, repealed § 15.32.120, which pertained to discount for charitable organizations and derived from prior Code § 40-1-151.

15.32.130 Reserved.

Editor's note—Ord. BL2012-333, § 4, adopted Feb. 5, 2013, repealed § 15.32.130, which pertained to discount for charitable organizations—Determined and derived from prior Code § 40-1-152.

15.32.140 Reserved.

Editor's note—Ord. BL2012-333, § 4, adopted Feb. 5, 2013, repealed § 15.32.140, which pertained to certain charitable organizations not eligible for discount and derived from prior Code § 40-1-153.

15.32.150 Free water—Modification of rates.

A. Except as otherwise provided in this title, the department shall furnish free water for public uses such as water for fighting fires, sprinkling and flushing streets and sewers. All agencies of the metropolitan government using such free water shall use every means to conserve its use, shall not in any manner abuse or misuse the equipment of the department and shall cooperate with the department in maintaining equipment used by other departments on obtaining free water in a first class working condition.

B. No free water may be furnished by the department except as may be provided by this chapter, and no modification of the water rates set out in this chapter may be made except for water consumed by other departments, boards or agencies of the metropolitan government, and such modifications shall be made only by the metropolitan council. (Prior code § 40-1-154)

15.32.160 Unmetered automatic sprinkler systems—Monthly service charge.

A. In all cases where unmetered connections to the water system of the metropolitan government for supplying water to automatic sprinkler systems for fire protection are permitted, a monthly service charge of $0.055 per head shall be made provided the minimum monthly charge shall not be less than fifteen dollars and thirty-one cents. If the charges are not paid within fifteen days after the bill is rendered, the department shall shut off the connection to the automatic sprinkler system after notifying proper authorities in the metropolitan fire department.

B. Sprinkler billing would be included with the monthly charge for water and sewer services and begin with the August 1995 bill. (Ord. 94-1239 § 1, 1994)

15.32.170 Private fire hydrants.

Every person, other than the metropolitan government, who now has or may hereafter erect fire hydrants within the limits of any street, alley, highway or other thoroughfare connected with the water system of the metropolitan government for the protection of his property against fire shall pay in advance an annual service charge of forty-eight dollars per hydrant. This service charge shall not apply to fire hydrants erected on private property and constituting an integral part of an automatic sprinkler system. (Prior code § 40-1-143)

15.32.180 Water for construction purposes—Paid for by owner.

All water used for building or repair purposes shall be paid for by the owner, agent, contractor or occupant of the premises where the work is to be done at the rates established by this chapter. As a condition precedent to the furnishing of water for such purposes, the party liable shall procure from the department an assessment of the amount due for the entire work and pay the same to the department. No person shall use the metropolitan government water for building or repair work without having paid the tax as above specified. (Prior code § 40-1-141)

15.32.190 Computation of net and gross billing.

All bills shall be rendered with the net and gross amount, which shall be determined by the following procedure:

A. All bills shall be figured at the established rate, as set out in this chapter, which shall be the net billing.

B. An additional amount equal to the greater of two dollars and fifty cents or five percent of the total current net billing shall be added to the net billing, the total of which shall be the gross billing; provided, that the gross bill will be due if the net bill is not paid within twenty days of billing. The gross bill will be combined with any arrears to determine the total amount due.

C. That if a residential customer has completed an application for their primary residence and their account is not in arrears, then with proper proof that they receive social security benefits, monthly income payments from state, federal or local government (which payments are not in the form of compensation or wages), service

pension benefits or retirement benefits, their account shall not be charged an additional five percent of the total current net billing. Participation in this program will not prevent a customer from receiving delinquent notices starting forty-five days after bill date.

D. Budget Billing. Within six months after the completion and installation of the department's new customer information system, the department shall create and implement a budget payment plan ("budget billing") for residential customers. Residential customers with at least twelve months of billing history will be eligible for budget billing. Budget billing amounts will be based on the prior twelve months history, with the average amount being due each month. At the end of twelve months, a true up will occur, and the amount due each month will be reassessed based on actual consumption. (Ord. BL2009-407 § 4, 2009; Ord. BL2007-1457 § 3, 2007; Ord. 99-1531 § 1, 1999; Amdt. 1 to Ord. 94-924, 4/5/94; Ord. 94-924 § 1, 1994; prior code § 40-1-138)

15.32.200 Using water without paying—Unlawful.

It is unlawful for any person to use the water from the metropolitan government mains without paying the charges established by this code or other ordinances therefor. (Prior code § 40-1-155)

15.32.210 Reports of water division.

A. The director of the department of water and sewerage services shall maintain financial policies, submit an annual written report to the metropolitan council regarding the financial performance of water division, and shall personally appear annually during the regularly scheduled budget hearing. Such report shall contain, at a minimum:

1. The audited financial statements, including net position, capital assets, outstanding bonds payable and other financial information.

2. The annual budget review, including the adequacy of budgeted revenues to cover projected expenses and debt requirements.

3. Financial policies and the department's performance against policy targets.

4. Any other information deemed relevant by the director or upon request of the transportation and infrastructure or budget and finance committees of the metropolitan council. (Ord. BL2023-1871 § 1, 2023; Ord. BL2019-46 § 1, 2019)

Chapter 15.34

RESIDENTIAL SANITARY SEWERAGE PUMPING SYSTEMS

Sections:

15.34.010	**Definitions.**
15.34.020	**Applicability.**
15.34.030	**Fees and charges.**
15.34.040	**Installation.**
15.34.050	**Ownership/maintenance responsibilities.**
15.34.060	**Disconnection.**
15.34.070	**Systems installed prior to adoption of the policy.**
15.34.080	**Agreement.**

15.34.010 Definitions.

"Collector force main" means a pipe which transports wastewater by means of internal pressure and is therefore not dependent upon gravity.

"Department" means the water services department of the Metropolitan Government of Nashville and Davidson County.

"Department installation" means a residential sanitary sewer pump installed by the department.

"Developer installation" means a residential sanitary sewer pump installed by developers with the approval of the department.

"Homeowner installation" means a residential sanitary sewer pump installed by a property owner, including those residential sanitary sewer pumps installed prior to the enactment of the ordinance codified in this chapter.

"Gravity sewer line" means a pipe that transports wastewater by means of natural gravity.

"Residential sanitary sewer pump" (RSSP) means an in-ground wastewater pumping system that serves as an alternative to either standard gravity service or septic tank/overflow service. This pump may discharge to either a gravity sewer line or to a collector force main. (Ord. 98-1427 § 1 (part), 1998)

15.34.020 Applicability.

The department shall determine, consistent with all applicable regulations, the methods by which single-family residential properties are provided with sanitary sewer service. (Ord. 98-1427 § 1 (part), 1998)

15.34.030 Fees and charges.

A. Sewer Service Charge. Properties having direct access to either a gravity sewer line or to a collector force main will be billed for sewerage service, in accordance with the Metropolitan Code of Laws Section 15.40.060, whether or not a connection is made. Therefore, properties having previously been granted an exemption from this charge solely on the basis of not having gravity access will become subject to the charge once access is provided. Exemptions from sewer service charges previously granted for any other reason will not be affected by this provision.

B. Connection Fee (Tap Fee). All connections of a RSSP to the public sewer system will require the payment of the department's standard residential connection fee (tap fee) before service will be provided, unless an agreement entered into between the department and the developer/homeowner expressly exempts the payment of such a fee.

C. Maintenance Fee. Developer installation of a RSSP will require the payment of a one-time nonrefundable maintenance fee per residential connection as set by the wastewater hearing authority. The initial fee will remain two thousand five hundred dollars until revised by the wastewater hearing authority. This fee will not be required for department installations nor for homeowner installations, except as provided in Section 15.34.050C. (Amdt. 1 to Ord. BL2016-331 § 1, 2016; Ord. BL2016-331 § 1, 2016; Ord. 98-1427 § 1 (part), 1998)

15.34.040 Installation.

A. The department will fund the installation cost for a department-installed RSSP, except for the electrical service and disconnect box which must be provided by the property owner at an exterior location of the department's choosing.

B. For homeowner and developer installations, the installation cost for a (RSSP) will be totally funded by the respective homeowner/developer. All installations must be in compliance with the department's specifications including an appropriately designed odor control system at the point of discharge of the collector force main. The system must be designed by a licensed engineer and approved by the department including any perpetual easement, permanent structure, power and telemetry.

C. As determined by the director or his designee, the installer of a RSSP system will be required to install resistant pipe materials or liners and apply manhole sealers, upstream and downstream from the discharge point, to protect the public sanitary sewer system from corrosive gases that may be generated by the (RSSP) system. The installer shall also install an appropriately sized odor control system based on site conditions as determined by the director or his designee at the point of discharge to the gravity sewer system at the installer's expense. The system must be designed by a licensed engineer and approved by the department including a

perpetual easement, permanent structure, power and telemetry. (Ord. BL2016-331 §§ 2, 3, 2016; Ord. 98-1427 § 1 (part), 1998)

15.34.050 Ownership/maintenance responsibilities.

A. A department-installed RSSP will remain the property of metro and will require the property owner to grant sufficient access easements to metro for maintenance by the department.

B. A developer-installed RSSP will be maintained by the department upon compliance with the following criteria:

1. The developer must deed the RSSP system to metro;

2. The developer must dedicate a sufficient access easement to metro for maintenance; and

3. The developer must pay the one-time, nonrefundable maintenance fee.

C. A homeowner-installed RSSP will normally be solely owned and maintained by the homeowner. However, if requested by a homeowner, the department may, at its discretion, elect to maintain such systems upon compliance with the following criteria:

1. The homeowner must deed the RSSP system to metro;

2. The homeowner must dedicate a sufficient access easement to metro for maintenance;

3. The homeowner must pay the one-time, nonrefundable maintenance fee;

4. For RSSP's installed prior to the effective date of the ordinance codified in this chapter, the RSSP must be brought into compliance with all applicable code, regulations or specifications of the department; and

5. If required by the department, the homeowner must participate in the expense of necessary off-site sewer construction.

D. For those systems maintained by the department, maintenance will include the entire RSSP system, including the service line connection to the public sewer system and the electrical wiring up to the disconnect box. However, the cost of repair or maintenance performed by the department will be billed to the property owner when the department determines such repair or maintenance is due to damage to the system caused by the property owner. The property owner will be responsible for the electric power costs in operating these systems.

E. The department will not be responsible for damage to or the replacement of any structures or landscaping which might prevent or impede reasonable access to the system for repair or maintenance. (Ord. 98-1427 § 1 (part), 1998)

15.34.060 Disconnection.

The property owner may be required to disconnect from this RSSP system and connect to the gravity sewer within sixty days of notification that gravity sewerage service has been made available to the property. For any RSSP that it owns, the department will then at its expense remove the system and will void/vacate any associated easements. (Ord. 98-1427 § 1 (part), 1998)

15.34.070 Systems installed prior to adoption of the policy.

RSSP systems installed prior to adoption of this policy will be maintained and operated in accordance with the Metropolitan Code of Laws. (Ord. 98-1427 § 1 (part), 1998)

15.34.080 Agreement.

The owner of property served by a RSSP system shall execute an agreement with the department referencing the responsibilities of the respective parties as contained in this chapter. Further, this agreement will become a covenant running with the land until such time that the RSSP system is removed. (Ord. 98-1427 § 1 (part), 1998)

Chapter 15.36

SEWER MAIN TAPPING FEES AND CHARGES

Sections:

15.36.010	**Applicability of chapter.**
15.36.020	**Connection fee.**
15.36.030	**Letters of availability.**
15.36.040	**Capacity charge.**
15.36.050	**Exemptions.**
15.36.060	**Fees for multiple connections.**
15.36.070	**Payment—Installment plans.**
15.36.080	**Unpaid fees—Lien on property.**
15.36.090	**Frontage defined.**
15.36.100	**Intermediate connections—Financed by developer—Reimbursement.**
15.36.110	**Oversized sewers.**
15.36.120	**Extensions—Property of metropolitan government.**
15.36.130	**Participation with development.**

15.36.010 Applicability of chapter.

The provisions of this chapter shall apply to all customers desiring or required to connect to the sewers of the public sanitary sewerage system of the metropolitan government. (Prior code § 40-1-101)

15.36.020 Connection fee.

A. All persons desiring or required to connect to the public sanitary sewerage system shall pay for the privilege of connecting to the sewer main a connection fee for each connection as follows:

Tap Size (inches)	Fee ($)
4 or 6	360.00
8	370.00
10	380.00
12	390.00
15	400.00

B. All fees collected shall be held and expended only for the development of the public sanitary sewerage system in accordance with the capital improvements budget and may be invested to further such purpose. (Ord. BL2019-45 § 6, 2019; Ord. BL2007-1457 § 9, 2007; prior code § 40-1-102)

15.36.030 Letters of availability.

A. The director is authorized to issue letters of availability to any person seeking to determine whether sewage capacity is available for any parcel of property. If the director determines that sewerage improvements are necessary before sewage capacity will be available for any parcel of property, the director is authorized to issue a letter of availability conditioned upon the person requesting the letter complying with all the conditions contained therein. All requests for letters of availability must contain adequate information on the proposed use of the parcel of property to permit the director to estimate the sewage flow from the property, and the letter of availability shall identify the maximum sewage flow for the parcel of property. The director may issue more than one letter of availability for any parcel of property.

B. The letter of availability shall constitute a commitment that the amount of flow identified therein shall be available for the parcel of property identified therein subject to any conditions contained therein for the time period stated therein.

C. Letters of availability may be renewed prior to their expiration by submitting a request for renewal to the director.

D. Any person requesting a letter of availability from the director shall pay a nonrefundable review fee at the time the request for the letter of availability is submitted to the director.

E. Whenever the director finds that the actual peak sewage flows as determined by the director plus any previously committed sewage flows do not exceed seventy percent of the capacity of the sewerage system, from the point of connection of a parcel of property to the point of discharge from a wastewater treatment plant, or that the ultimate development of the drainage basin in which a parcel of property is located will not exceed the capacity of the above described sewerage system, the director may issue a letter of availability or renew a previously issued letter of availability, which will be effective for one year from the date of issuance or renewal, without collecting prior to the issuance of the letter of availability any portion of the capacity charge imposed by Section 15.36.040.

F. Whenever the director finds that the actual peak sewage flow, as determined by the director plus, any previously committed sewage flows, equals or exceeds seventy percent of the capacity of the sewage system from the point of connection of a parcel of property to the point of discharge from a wastewater treatment plant, the director may issue a letter of availability or renew a previously issued letter of availability which

will be effective from the date of issuance or renewal for the period set forth below only upon the receipt of the percentage of the capacity charge imposed by Section 15.36.040 as set forth below:

Period of Commitment	Percentage of Capacity Charge
One year	30%
Two years	55%
Three years	100%

G. Provided, however, no commitment for more than fifty percent of the remaining available capacity of the sewerage system as described in subsections E and F for any period of time shall be made by the director unless one hundred percent of the capacity charge imposed by Section 15.36.040 is paid prior to the issuance of a letter of availability.

H. Any capacity charge paid pursuant to subsection G is applicable only to the parcel(s) of property identified in the letter of availability. Any capacity charge paid by the owner of a parcel of property may be transferred with the property whenever the property is sold to a new owner. No refund of any capacity charge collected pursuant to subsection G shall be permitted unless the connection of the parcel of property pursuant to a unexpired letter of availability or renewal thereof is not permitted because of any restriction on sewer connections subsequently imposed upon the department of water and sewer service. Any capacity charge paid by the person pursuant to the preceding subsections shall be applied toward the total capacity charge imposed pursuant to Section 15.36.040 if the person paying said capacity charge or his/her successor in interest obtains a permit to connect the parcel(s) of property identified in the letter of availability to the sewerage system prior to the expiration of the letter of availability or any renewal thereof. (Ord. BL2019-45 § 7, 2019; Ord. 90-1383 § 1, 1990; prior code § 40-1-102.2)

15.36.040 Capacity charge.

A. Notwithstanding any other provision of the Metropolitan Code of Laws to the contrary, there is established a capacity charge of two thousand three hundred dollars per unit of flow on all new connections to the public sewer system. An increase in sewer use of ten percent or more through an existing connection, as compared to average flow during the previous three years, shall be considered a new connection for purposes of this section. This capacity charge shall be distinguished from and collected in addition to applicable tap fees.

B. Trunk sewer construction or expansion funding by the metropolitan government shall be only upon the basis of availability of funds. If developers fund construction or expansion of trunk sewers, the metropolitan government shall collect the charges created herein in accordance with subsection F, below. Nothing in this subsection shall be construed to create any obligation on the metropolitan government to fund in whole or in part the construction or expansion of trunk sewers.

C. The charges established herein shall be placed in the extension and replacement fund of the metropolitan department of water and sewerage services.

D. "Unit of flow," as used in this section, is defined as three hundred fifty gallons per day expected average usage, and "existing sewer" shall mean the extension of a public sewer is not required to serve the property.

E. The passage of this section shall not void any existing contractual commitments for sewer capacity made by the metropolitan government, department of water and sewerage services, on its obligations assumed by the acquisition of other utility districts. In those instances where the department of water and sewerage services has notified developers of available capacity, such notice shall serve as a commitment of the stated capacity during the term specified in such notice, if any, or, if no term is specified, for one year after the adoption of this section. A "master plan development area" shall be defined as an area on which a plan has received preliminary approval by the planning commission for overall orderly development although the actual development of such area is to be conducted in stages. The sewer assessment fee for a master plan development area shall be exempted for the approved number of units for a period of two years from the date of passage of this section, provided that an overall plan for providing sewer service has been accepted by the department of water and sewerage service as the basis for approval of construction plans for sanitary sewers to serve the master plan development area. The passage of this section shall supersede and void, after two years, future application of the funding arrangement previously established for the Larchwood Drainage Basin by Ordinance No. 081-724, said ordinance being repealed effective two years after passage of this section. After two years, charges in Larchwood will be collected pursuant to the terms of this section. All existing contracts shall be honored relating to Larchwood.

F. Except in cases covered by Section 15.36.070 of the Metropolitan Code of Laws, all charges established under this section shall be due and payable prior to the issuance of a permit for service connection to the public sewer. If a developer prepays any part or all of the fee charge, such payment may be indicated with the filing of

the property subdivision plat or other duly recorded instrument. This contribution may be in the form of cash payments or equivalent construction cost. In the event a developer contributes, in equivalent construction cost, an amount greater than the charge established by this section, such developers shall be reimbursed for such contribution to that extent when the department collects other applicable fees from properties served by that project. Any such reimbursement shall be made only after the metropolitan government has been reimbursed the entirety of its cost. The department of water and sewerage services shall keep permanent records for each project and all contractual obligations shall be sworn to and executed by the participating party. The director of the department of water and sewerage services is authorized to enter into said agreements in behalf of the metropolitan government. (Ord. BL2019-45 § 8, 2019; Ord. BL2009-407 § 5, 2009; Ord. BL2008-215 §§ 6, 7, 2008; Ord. BL2007-1457 § 8, 2007; Ord. BL2006-1095 § 3, 2006; prior code § 40-1-102.1)

15.36.050 Exemptions.

The following lots shall be exempt from payment of the tapping or connecting fees established by this chapter:

A. Lots connected to the public sanitary sewer system as of the effective date of this chapter. This exemption shall not apply to additional residences or buildings erected on property served by the public sanitary sewer system when a new connection is required. However, nothing herein shall be construed to require connection fees where the structures to be served, having a private sanitary waste disposal system, existed prior to the construction of a public sanitary sewer accessible to the property to which the structure is a part and which was funded before the effective date of Ordinance 82-1034 (October 5, 1982). The fees described herein shall be applicable to vacant lots and to all lots served by sanitary sewers funded and constructed after the effective date of Ordinance 82-1034;

B. Lots granted sewer taps as partial consideration of the conveyance of sewer easements in projects funded prior to the effective date of Ordinance 82-1034 to the full extent of the agreement. This exemption shall not apply to additional residences or buildings erected on property served by the public sanitary sewer system except as stated in such agreements;

C. Vacant lots previously connected to the sanitary sewer system for which service has been discontinued where service is reconnected with the property being used for the same or similar purpose and the service line is equal to or smaller than the prior connection;

D. Those lots located in subdivisions or developments in which sanitary sewers have been constructed at the expense of a subdivider or developer under an agreement with the metropolitan government whereby the privilege of tapping or connecting has been or may be at the time the permit is taken assigned to such property by the subdivider or developer until the subdivider or developer's equity has been recouped. Nothing herein shall be construed to void or otherwise change existing contracts or agreements between the metropolitan government and subdividers or developers. (Amdt. 1 to Ord. BL2015-1213 § 3, 2015; Ord. BL2015-1213 § 3, 2015; prior code § 40-1-109)

15.36.060 Fees for multiple connections.

Fees for each connection to the public sanitary sewer where more than one connection to the sanitary sewer is required or made shall be calculated in accordance with the schedule of fees established in Section 15.36.020; provided, that only one additional charge for frontage in excess of fifty feet shall be made. (Prior code § 40-1-103)

15.36.070 Payment—Installment plans.

The director of the department of water and sewerage services and director of finance are authorized to establish a system of partial payments for tapping and capacity charges created by this chapter for customers using four-inch, six-inch and eight-inch sanitary sewer connections with expected sewer effluent averaging five thousand gallons per day or less. Eligible customers shall be allowed to make payment in thirty-six equal monthly installments, without interest, from the date of connection. Upon request, the director shall review the account of each eligible customer on or about the first anniversary of the establishment of the account to determine the customer's actual capacity requirement. In the event that the actual capacity requirement differs by ten percent or more from the capacity estimate used at establishment of the account to determine the capacity charge created by this chapter, the director shall refund to or collect from the customer, as appropriate, the difference between the capacity charge previously paid by the customer and the capacity charge calculated on the customer's actual capacity requirement. The director further shall amend the terms of any payment plan contemplated in this section as necessary to cause the total capacity charge paid by an eligible customer to be based on the customer's actual capacity requirement. A copy of this section of the Metropolitan Code shall be made available to any customer entering into a payment plan hereunder. This section shall not apply to single-family residential developments or to combined single-

family and commercial developments. (Ord. BL2009-407 § 6, 2009; Ord. BL2008-215 § 8, 2008; prior code § 40-1-104)

15.36.080 Unpaid fees—Lien on property.

Tapping and capacity fees specified in this chapter shall constitute a lien against the property served, which lien shall run with the property. The Metropolitan Government may enforce the lien against the property involved as prescribed by law. (Ord. BL2008-215 § 9, 2008; prior code § 40-1-105)

15.36.090 Frontage defined.

"Frontage" shall be defined as that boundary of a parcel of land abutting on an accessible sewer. In the event that more than one boundary of the parcel of land abuts on an accessible sewer, the property owner may elect to tap either sewer at a fee determined by the feet of frontage of the lot to be supplied, or the lesser abutting dimension of such lot. (Prior code § 40-1-106)

15.36.100 Intermediate connections—Financed by developer—Reimbursement.

When property is isolated or remotely located from the nearest accessible sewer, the director may require the developer or applicant for sewerage service to finance the necessary run of intermediate or connecting sewer; however, the person financing such a section of sewer shall be reimbursed annually from proceeds from the sale of tapping privileges by the department in accordance with the schedule of fees established in this chapter to subsequent subscribers on such connecting sewer until such developer or applicant has been reimbursed the actual established cost of such connecting sewer, or for a period of fifteen years, whichever should occur sooner. (Prior code § 40-1-107)

15.36.110 Oversized sewers.

The foregoing provisions are based on an eight-inch sewer, which size is generally accepted as the minimum size required to supply sewerage service. However, in the case of subdivisions which may be located in a relatively isolated section or of large industrial plants or other similar types of applicants, it may become necessary to install, or extend sewers larger than eight inches in size to take care of the needs for such a particular user or future upland users. Therefore, the director is authorized to negotiate and enter into an equitable agreement with such prospective customer and subsequent customers of this classification. (Prior code § 40-1-108)

15.36.120 Extensions—Property of metropolitan government.

When it becomes necessary to construct a system of sewer mains in a subdivision or on private property for the purpose of serving multiple structures or a single structure, the sewer main or mains shall be installed by the developer or owner in accordance with the regulations of the department, and shall become a part of the public sanitary sewerage system. (Prior code § 40-1-110)

15.36.130 Participation with development.

The metropolitan council may approve participation agreements for lay and deed infrastructure projects, participation agreements for funding to utilize toward future systemwide upgrades and maintenance agreements for funding towards the future increase in cost for the operation and maintenance costs of infrastructure between the metropolitan department of water and sewerage services and developers by resolution. (Ord. BL2022-1214 § 1, 2022)

Chapter 15.40

SEWER SYSTEM USE REGULATIONS

Sections:

15.40.010	**Compliance with plumbing code required.**
15.40.020	**Regulation and enforcement—Authority of director.**
15.40.030	**Reserved.**
15.40.040	**Connection required.**
15.40.050	**Maintenance of service connection—Owner's and department's responsibility.**
15.40.060	**Reserved.**
15.40.070	**Unserved parcels.**
15.40.080	**Discharge of garbage prohibited.**
15.40.090	**Stormwater—Runoff to sanitary sewers prohibited.**
15.40.100	**Stormwater—Prevention of runoff to separate sewers.**
15.40.110	**Stormwater—Discharge to combined sewers or natural watercourses.**
15.40.120	**Service connections across private property.**

15.40.010 Compliance with plumbing code required.

All connections to the public sanitary sewerage system shall be in full accord with the plumbing code or other applicable provisions of this chapter or other ordinances of the metropolitan government. (Prior code § 40-1-179)

15.40.020 Regulation and enforcement—Authority of director.

The director is authorized and directed to promulgate and enforce such rules and regulations as he may deem necessary for the enforcement of this chapter and for the safe, economical and efficient management, control and protection of the government's public sanitary sewerage system. The director of the metropolitan public health department may require connection to the public sewerage system in accordance with this chapter when public health concerns are identified. (Amdt. 1 to Ord. BL2006-1239 § 12, 2006; Ord. BL2006-1239 § 12, 2006; Ord. BL2005-769 § 1, 2005; prior code § 40-1-174)

15.40.030 Reserved.

Editor's note—Ord. BL2006-1239, § 13, adopted Dec. 5, 2006, repealed § 15.40.030, which pertained to connection required—Existing buildings and derived from prior Code § 40-1-175.

15.40.040 Connection required.

Any persons owning improved parcels contiguous to public rights-of-way and/or public utility easements containing public sanitary sewers shall make connection to the public infrastructure in accordance with the department's current specifications and sewer acceptability policy. This must be accomplished within sixty days of being notified by the department to do so unless otherwise notified by the director. Any required fees and service charges will be billed on the next billing cycle. This schedule may be shortened if an existing condition is a threat to public health and safety. (Ord. BL2006-1239 § 14, 2006; prior code § 40-1-176)

15.40.050 Maintenance of service connection—Owner's and department's responsibility.

A. The owner will own and maintain his sewer service line from the public sewer main to the structure served.

B. If the owner experiences sewer service interruption as a result of a sewer service line failure and has demonstrated a good faith effort to remedy the problem, the department shall make any necessary repair on the portion of sewer service line inside the public right-of-way or easement from the main to the boundary of right-of-way or easement. Provided, however, that before the department will make such repairs, the owner must provide an excavated clear and open access to the sewer service line at the right-of-way or easement boundary. Residential customers will not be billed for any repair performed by the department under this section. Commercial customers shall pay all costs of repair incurred by the department under this section and such costs shall be billed on the customer's next bill. (Ord. BL2006-1239 § 15, 2006; prior code § 40-1-177)

15.40.060 Reserved.

Editor's note—Ord. BL2006-1239, § 16, adopted Dec. 5, 2006, repealed § 15.40.060, which pertained to notice to connect—Accrual of charges upon expiration of notice and derived from prior Code § 40-1-178.

15.40.070 Unserved parcels.

Improved parcels outside the service area of the department are required to the rules and regulations of the metropolitan department of health pertaining to the disposal of sewage. (Ord. BL2006-1239 § 17, 2006; prior code § 40-1-180)

15.40.080 Discharge of garbage prohibited.

All discharge to the public sanitary sewer system shall be in accordance with the rules and regulations of the

department. (Ord. BL2006-1239 § 18, 2006; prior code § 40-1-181)

15.40.090 Stormwater—Runoff to sanitary sewers prohibited.

The discharge of stormwater runoff to separate sanitary sewers is prohibited. (Prior code § 40-1-182)

15.40.100 Stormwater—Prevention of runoff to separate sewers.

All persons connecting to the public sanitary sewerage system shall provide adequate means for excluding stormwater runoff in the event connection is made to separate sanitary sewers. (Prior code § 40-1-183)

15.40.110 Stormwater—Discharge to combined sewers or natural watercourses.

Discharge of stormwater runoff shall be in compliance with the department's current version of its Stormwater Management Manual, which shall be made available for review in the department's stormwater office. (Ord. BL2006-1239 § 19, 2006; prior code § 40-1-184)

15.40.120 Service connections across private property.

All sewer connections and extended service lines must either be through the public right-of-way to the property served or through metro government controlled utility easements to the property served. (Ord. BL2006-1239 § 5, 2006)

Chapter 15.44

SEWER RATES AND CHARGES

Sections:

15.44.010 **Classes of customers designated.**
15.44.020 **Monthly rates.**
15.44.030 **Other water supplies—Approved meters required.**
15.44.040 **Computation of net and gross billing.**
15.44.050 **Waters diverted from public sewerage system—Measurement—Reduction in charges.**
15.44.060 **Vacant property readiness to serve charge.**
15.44.070 **Reports of sewerage division.**

15.44.010 Classes of customers designated.

There shall be two classes of customers for sewer service. There shall be a residential class, comprising properties with one or two housing units receiving domestic water service through one meter. All other sewer customers shall be classified as non-residential. (Ord. BL2019-45 § 9, 2019; Ord. 90-1385 § 6 (part), 1990; prior code § 40-1-158)

15.44.020 Monthly rates.

A. For the years beginning January 1, 2020 through January 1, 2024, every customer receiving sewer service from the department shall pay a fixed monthly service charge based on water meter size as provided in Table 15.44.020(a) and a monthly sewer usage charge as provided in Table 15.44.020(b).

Table 15.44.020(a) — Sewer Service Charge

Water Meter Size (inches)	*Monthly Service Charge ($)*				
	Year 2020	*Year 2021*	*Year 2022*	*Year 2023*	*Year 2024*
⅝	8.14	8.46	8.72	8.98	9.25
¾	36.00	37.44	38.56	39.72	40.91
1	46.58	48.44	49.90	51.39	52.94
1.5	90.67	94.30	97.13	100.04	103.04
2	127.38	132.48	136.45	140.55	144.76
3	158.59	164.93	169.88	174.98	180.22
4	449.98	467.97	482.01	496.47	511.37
6	536.44	557.89	574.63	591.87	609.63
8 and 10	686.89	714.36	735.79	757.87	780.60

Table 15.44.020(b) — Sewer Usage Charge

Residential Usage (ccf):

	Charge Per CCF ($)				
	Year 2020	*Year 2021*	*Year 2022*	*Year 2023*	*Year 2024*
0—2	—	—	—	—	—
More than 2	5.85	6.08	6.26	6.45	6.64

Non-Residential Usage (ccf):

	Charge Per CCF ($)				
	Year 2020	*Year 2021*	*Year 2022*	*Year 2023*	*Year 2024*
0—2	—	—	—	—	—
More than 2	5.85	6.08	6.26	6.45	6.64

B. The rates provided in Table 15.44.020(a) and 15.44.020(b) shall be adjusted on January 1, 2025 and on January 1 of each succeeding year by the greater of (a) a percentage equal to the percentage change in the CPI Urban Index (CPI-U) over the preceding year and (b) 2%, unless the change in the CPI-U is negative, in which case there shall be no change. Notice of annual adjustments to begin on January 1, 2025, shall be provided to each member of the metropolitan council, published on the metropolitan government's website and made available to the public in the metropolitan clerk's office at least thirty days before an adjustment goes into effect. Not later than the seventh anniversary of the effective date of this ordinance, and at least every seven years thereafter, the department shall engage a qualified consultant to perform a rate study and analysis to confirm the department's costs in providing service and determine whether the rates then in effect are fair and reasonable. A copy of such studies shall be provided to each member of the metropolitan council, published on the metropolitan government's website and made available to the public in the metropolitan clerk's office. (Amdt. A to Ord. BL2019-45 § 10, 2019; Ord. BL2019-45 § 10, 2019; Ord. BL2009-407 § 7, 2009; Ord. 99-1502 § 2, 1999)

15.44.030 Other water supplies—Approved meters required.

In the event that any person discharging sanitary sewage, industrial waste, water or other liquids into the public sanitary sewerage system, either directly or indirectly, obtains part or all of the water used by him from a water supply other than that of the department, he shall register such supply with the department; and if the water from such supply is not measured by a water meter or is measured by a water meter not acceptable to

the department, then the user of such water supply, at his own expense, shall install and maintain water meters satisfactory to the department on all such supplies, and shall pay for the privilege of using the public sanitary sewerage system a charge based upon the schedule of rates for sewerage service set out in Section 15.44.020. (Prior code § 40-1-157)

15.44.040 Computation of net and gross billing.

All bills shall be rendered with the net and gross amount, which shall be determined by the following procedure:

A. All bills shall be figured at the established rates as set out in this chapter, which shall be the net billing.

B. An additional five percent of the total current net billing shall be added to the net billing, the total of which shall be the gross billing; provided, that the gross bill will be due if the net bill is not paid within twenty days of billing. The gross bill will be combined with any arrears to determine the total amount due.

C. That if a residential customer has completed an application for their primary residence and their account is not in arrears, then with proper proof that they receive social security benefits, monthly income payments from state, federal or local government (which payments are not in the form of compensation or wages), service pension benefits or retirement benefits, their net and gross bill will be computed as follows: The meter will be read during the regular billing cycle and the five percent gross will be computed consistent with Section B of this section. However, the gross amount will not be due until after the seventh day of the month following the billing date. Participation in this program will not prevent a customer from receiving late charges, delinquent notices or prevent disconnections for nonpayment. (Ord. BL2012-333 § 5, 2013; Amdt. 1 to Ord. 94-924, 4/5/94; Ord. 94-924 § 1, 1994; prior code § 40-1-159)

15.44.050 Waters diverted from public sewerage system—Measurement—Reduction in charges.

A. In the event that it is established to the satisfaction of the department that all or a portion of the water consumed does not and cannot enter the public sanitary sewerage system, then such water not reaching the system shall be excluded from the computation of the charge for sewerage service. In such event, the department may require or shall permit the installation of additional meters at the customer's or interested party's expense in such a manner as to measure either the quantity of water actually excluded from the public sanitary sewerage system or the actual quantity of water discharged thereto. Meters shall be of a type suitable for the service which they are to perform, shall meet with the approval of the department, and shall be installed and maintained in a manner satisfactory to the department. In the event that it is desired to meter the water excluded or diverted from the public sanitary sewerage system, then all outlets for such water shall be consolidated and measured by one single meter. In the event that it is desired to meter the actual flow to the sewer, the meter shall be installed in a suitable manner. All such meters or measuring devices shall be under the control of the department, and may be tested, inspected or repaired by the department whenever the department deems it necessary. All repairs thereto shall be made at the expense of the person owning the meter.

B. In the event that the department finds it is not practical to measure either the actual sewage and industrial waste flow or the flow of diverted water for commercial and industrial customers, it may, at its discretion, approve some other manner of computing or estimating the amount of water diverted from or discharged to the public sanitary sewerage system. Effective July 1, 2007, the department shall implement a method for computing or estimating the amount of water diverted from the public sanitary sewerage system by residential customers based upon an average of the customer's monthly usage during the months of January, February and March. Such residential customers shall not be billed for sewerage service for the estimated amount of water diverted from the sanitary sewerage system. Notwithstanding the provisions of subsection A. of this section to the contrary, no residential customer shall be required to install an additional meter or meters for the purpose of determining the amount of water diverted from the public sanitary sewerage system in order to be eligible for a billing adjustment pursuant to this subsection.

C. Also, in the event that the department finds it is not practical to make an actual measurement of the waste discharge from the premises of the customer into the public sanitary sewerage system, the department may, at its discretion, accept as the volume of waste discharged from the premises as shown by water meters of the department or water meters approved by the department through which meter water is sold or used by the customer.

D. Customers, other than those residential customers eligible for a billing adjustment pursuant to subsection B. of this section, requesting consideration for a reduction in sewerage service charges because of water excluded from the public sanitary sewerage system shall make written application to the department for such consideration, giving their name, address, account number

and supporting data fully describing all sources of water, as well as the disposition of water alleged not to be entering the public sanitary sewerage system. The application shall be accompanied by a sketch to approximate scale showing the plan of the property, water distribution system, sewer layout, existing meters and proposed meters and the scheme proposed for determining the quantity of water entering the public sanitary sewerage system.

E. Reserved. (Ord. BL2021-794 § 1, 2021; Amdt. 1 to Ord. BL2012-218 § 1, 2012; Ord. BL2012-218 § 1, 2012; Ord. BL2006-1186 § 1, 2006; prior code § 40-1-160)

15.44.060 Vacant property readiness to serve charge.

The department shall bill and collect from the owner of any vacant lot not covered by an existing water and sewer account with the department and having access to the public sanitary sewer a monthly readiness-to-serve charge of ten dollars. (Ord. BL2007-1457 § 2, 2007)

15.44.070 Reports of sewerage division.

A. The director of the department of water and sewerage services shall maintain financial policies, submit an annual written report to the metropolitan council regarding the financial performance of the sewerage division, and shall personally appear annually during the regularly scheduled budget hearing. Such report shall contain, at a minimum:

1. The audited financial statements, including net position, capital assets, outstanding bonds payable and other financial information.

2. The annual budget review, including the adequacy of budgeted revenues to cover projected expenses and debt requirements.

3. Financial policies and the department's performance against policy targets.

4. Any other information deemed relevant by the director or upon request of the transportation and infrastructure or budget and finance committees of the metropolitan council. (Ord. BL2023-1871 § 2, 2023; Ord. BL2019-46 § 2, 2019)

Chapter 15.48

WATER AND SEWER SERVICE BILLING PROCEDURES

Sections:

15.48.010 Applicability of rates and charges.
15.48.020 Meter reading and billing procedure.
15.48.030 Deposits—Service initiation fees.
15.48.035 [Surcharge.]
15.48.040 Government housing projects.
15.48.050 Establishment of billing districts—Authority of department.
15.48.060 Combined bills rendered to all consumers.
15.48.070 Billing period.
15.48.080 Bills mailed to property served—Exception.
15.48.090 Inoperative meters—Estimation of water usage.
15.48.100 Meter readings recorded on bill.
15.48.110 Collection—Mailing of bills.
15.48.120 Payment—Pay stations.
15.48.130 Temporary service—Minimum charge.
15.48.140 Adjustments—Exception to procedures.
15.48.150 Successive adjustments when.
15.48.160 Adjustments—Preparation of ledgers.
15.48.170 Adjustments—Due to incorrect meters.
15.48.180 Adjustments—Concealed leaks and vandalism.
15.48.190 Adjustments—Errors in meter readings.
15.48.200 Estimating bill—Defective meters.
15.48.210 Payment due—Net and gross bills.
15.48.220 Payment—Time extensions—Restoration of service.
15.48.230 Delinquent bills—Discontinuance of service—Service charges.
15.48.240 Restoration of service following payment of account.
15.48.250 Unauthorized reconnection—Disconnection of supply pipes.
15.48.260 Payment—Returned check charge.
15.48.270 Reinstatement charge following temporary disconnection.
15.48.280 Reserved.
15.48.290 New account connection—Same day service charge.
15.48.300 New water meter installation inspection charge.

15.48.010 Applicability of rates and charges.

The department shall charge for all water provided by the department and consumed by each consumer and customer and shall charge for the sewerage services provided by the department and made available to each customer. The charges for water and sewerage services shall be made according to meter measurement of water consumed or otherwise as provided by this chapter and at the rates established by Chapters 15.32 and 15.44. (Prior code § 40-1-111)

15.48.020 Meter reading and billing procedure.

A. After a customer has requested water or sewerage service and complied with the applicable provisions of this title, the standard terms of service contemplated by Metropolitan Code of Laws Section 15.12.020, and the rules and regulations of the department, the water shall then be turned on and the meter shall be read.

B. This procedure of reading and billing shall continue until the consumer or customer shall direct that service be discontinued at the specified location or until the department shall discontinue service on account of the failure of the consumer or customer to comply with the regulations of the department, the standard terms of service, or the provisions of this title.

C. Any consumer who shall move into any premises without first notifying the division of billing and collection of the department, requesting that the meter supplying the premises be read shall be held responsible for all charges for water and sewerage services measured by water passing through the meter since the last previous reading, unless the same has been paid for by the former tenant. (Ord. BL2005-867 §§ 3, 4, 2005; Ord. 94-1242 § 1, 1994; prior code § 40-1-112)

15.48.030 Deposits—Service initiation fees.

A. Any nonresidential consumer or customer who secures water and/or sewerage services from the department shall pay a deposit, post a bond, secure a certificate of deposit, present a letter of credit or other legal instrument to insure payment of the account based upon

charges for two months' estimated usage. However, the director of the department may require any amount of deposit, bond or letter of credit higher than a two-month estimate where it is deemed necessary from past experience to insure the metropolitan government against loss of revenues.

B. Residential customers currently with deposits who have paid ten of the last twelve consecutive monthly billings from the department prior to the gross bill date, in accordance with Section 15.32.190, shall have their deposit credited to their account. The credit will be applied to customer's accounts at a time determined by the director of the department of water and sewerage services. Upon termination of an account where the deposit has not been credited to the account, the deposit shall be applied toward the payment of any outstanding indebtedness to the department and any remaining part of such deposit shall be refunded.

C. Residential customers establishing accounts and transfers of residential accounts after the adoption of the ordinance codified in this section shall be required to pay a nonrefundable service fee of twenty-five dollars. The director, or his representative, may still require a deposit be placed with the department if the payment history of any customer justifies that a deposit is needed to prevent potential revenue losses at any time. (Ord. 93-822 § 1, 1993)

15.48.035 [Surcharge.]

A ten percent surcharge shall be added to both the water and the sewer portion of each customer's bill each month, with amounts collected from such surcharge authorized for use in funding water and sewer, capital improvements, and debt obligations related to improvements, alterations, and extensions of the water and sewerage systems. (Ord. BL2019-45 § 11, 2019)

15.48.040 Government housing projects.

For the purpose of supplying water and sewerage services to a federal, state, county or municipal housing project, the director is authorized to specify as many meters and service connections as he may deem necessary to properly supply and measure the consumption of water by such projects, and the department is authorized to pool the individual readings of the service meters into a lump-sum reading for each project separately. The lump-sum reading shall be used as a basis for arriving at the rate upon which the combined water and sewerage bill shall be calculated for each project separately. (Prior code § 40-1-135)

15.48.050 Establishment of billing districts—Authority of department.

For the purpose of systematically and efficiently reading meters and billing accounts, the proper officials of the department may establish or divide the territory supplied by water into such reading or billing districts as they may deem necessary, and the department is authorized to extend, readjust or modify the boundary limits of any zone when, within the discretion of the proper officials thereof, it is deemed necessary to so do. (Prior code § 40-1-116)

15.48.060 Combined bills rendered to all consumers.

There shall be rendered to all consumers and customers, subject to the rates and charges established in Chapters 15.32 and 15.44, a periodic combined water and sewerage services bill. All charges shall be itemized on the combined bill. The combined bill shall be rendered to all consumers or customers, regardless of whether such consumer or customer is utilizing, or has the benefit of, any one or the other or both of the services, the rates for which are provided for in Chapters 15.32 and 15.44. The total amount of the combined water and sewerage services bill shall be paid when due, and failure to make payment of the entire combined bill shall cause the bill to become delinquent as to all charges. (Prior code § 40-1-114)

15.48.070 Billing period.

Whenever, in the judgment of the department, it is deemed advisable, accounts may be billed monthly or bimonthly, and accounts may be transferred from a monthly basis to a bimonthly basis or vice versa at the election of the director. (Ord. 94-1242 § 2, 1994)

15.48.080 Bills mailed to property served—Exception.

Unless a request of a special mailing address is signed and placed on file in the office of the division of billing and collection of the department, all bills and charges shall be addressed to the property supplied. Failure to receive a water bill or a water and sewerage bill shall not entitle the owner, consumer or customer to be relieved of the payment of the gross amount. (Prior code § 40-1-119)

15.48.090 Inoperative meters—Estimation of water usage.

All water bills and combined water and sewerage service bills, other than flat rate assessments for unmetered water, shall be rendered by the department in

accordance with monthly, bimonthly or quarterly meter readings except under the following circumstances and conditions:

A. Where meters have been found not registering flow or become inoperable during any one billing period, the properly authorized officials of the department shall have the right to render to the consumer or customer an estimated bill based upon the water consumption and/or sewerage flow for service charged to the account during the same billing period one year previous, provided the conditions of consumption and service use are the same for both periods. If the consumption and/or sewer flow are not a normal amount, the consumption and/or sewer flow for the average of the three previous months of normal usage will be used.

B. Each estimated bill shall contain a notation on the bill explaining that the bill has been estimated in accordance with this section, and if the consumer or customer is dissatisfied with such an estimation, it shall be incumbent upon consumer or customer to prove to the department, by affidavit, that the use of water, during the period for which the bill was estimated, was different than the corresponding usage during the same billing period one year previous or previous three-month average of normal usage. Upon the presentation of such satisfactory proof, the director of the department may authorize the bill be adjusted based upon any basis that they may deem equitable and just to the consumer or customer and to the department jointly.

C. Estimated meter readings may be rendered when the director determines it is necessary to estimate the meter readings to render a monthly or bimonthly bill. (Ord. BL2006-1095 § 4, 2006; Ord. 99-1498 §§ 1, 2, 1999; Ord. 94-1242 § 3, 1994)

15.48.100 Meter readings recorded on bill.

In the case of meter assessments, there shall be given the readings of the meter of each consumer or customer showing the quantity of water used and the charge therefor and for sewerage services; provided, that if it should be impossible to give meter readings, a notation shall be made on the bill as provided for in Section 15.48.090. (Prior code § 40-1-120)

15.48.110 Collection—Mailing of bills.

After the meters have been read for a particular zone or district and the bills have been calculated from the readings and the amounts have been charged to the proper accounts, the director shall then proceed to collect, or cause to be collected, these accounts. There shall be mailed or delivered to the address of each consumer and customer appearing on the ledgers, taking street by street, a bill for the water and sewerage services provided the consumer or customer, and the bill shall show on its face in bold type that if the amount of the bill is not paid within fifteen days from the date of the bill, the water will be turned off. (Prior code § 40-1-118)

15.48.120 Payment—Pay stations.

All bills or money due the department shall be payable to the department at the office of the division of billing and collection and other established pay stations. The director shall have the authority to enter into agreements with local businesses to act as pay stations for the department; provided, however, that such local businesses have first been approved by the metropolitan council by resolution. (§ 1 of Amdt. 1 to Ord. 88-613, 1/17/89; Ord. 88-613 § 1, 1990; prior code § 40-1-115)

15.48.130 Temporary service—Minimum charge.

Where water is furnished temporarily for only a portion of the billing period, no charge less than the minimum bill for that period shall be made. (Prior code § 40-1-134)

15.48.140 Adjustments—Exception to procedures.

In the event it should not be reasonable to apply any of the procedures for adjusting bills specified elsewhere in this title, the proper officials of the department shall arrive at an estimated normal bill in a manner most equitable to the consumer or customer and the department. (Prior code § 40-1-126)

15.48.150 Successive adjustments when.

Two successive adjustments may be given only in the event that a leak in question may be reflected in the consumption of a preceding or succeeding month. (Ord. 94-1241 § 3, 1994; prior code § 40-1-127)

15.48.160 Adjustments—Preparation of ledgers.

Water accounts and sewerage accounts may be adjusted by the department or changed in accordance with the rules and regulations contained in this article before or after the water and sewerage ledgers or accounts receivable have been prepared; provided, that such adjustments or changes shall be made with a correction voucher signed by the proper official or officials of the department. (Prior code § 40-1-128)

15.48.170 Adjustments—Due to incorrect meters.

A. At the written request of an owner, consumer or customer, the department shall test the meter supplying the premises, and the result of the test shall be reported to the owner or consumer in each case.

B. If the testing of the meter on a flow equal to one-eighth of the diameter of the service line shows that it fails to register correctly within two percent, the charge to the consumer or customer shall be adjusted according to the variation of registration from one hundred percent, but such adjustments shall apply to the current period, only, unless it is apparent to the department that the consumption of a previous period has also been affected by the same cause.

C. In the event a consumer or customer has paid an amount greater than the actual water and/or sewer usage due to an incorrect meter, the department shall reimburse the consumer or customer upon request rather than applying a credit to the consumer or customer's account. (Ord. BL2007-1435 § 1, 2007; prior code § 40-1-124)

15.48.180 Adjustments—Concealed leaks and vandalism.

A. Where concealed leaks have been discovered and repaired and an affidavit, on a form approved by the department, stating the leaks were concealed and that the leaks could not have been detected by the consumer or customer by employing reasonable care and supervision of their plumbing and that the leaks were of such a size as to cause the consumption as shown on the bill in question and that the plumbing system is now free from leaks, the consumer or customer shall either (1) be given a credit on the water portion of fifty percent of the excess caused by such leakage above the average monthly bill for the previous year, or (2) if the consumer or customer has already paid a higher bill due to a concealed leak, be reimbursed in an amount equal to fifty percent of the excess caused by such leakage above the average monthly bill for the previous year, provided the conditions of consumption and service used are the same for both periods of consumption, but in no case shall the adjusted bill for single-family residential dwellings be more than twice the average monthly bill.

The consumer or customer shall either (1) be given a credit on the sewer portion of the bill of fifty percent of the excess caused by such leakage above the average monthly bill for the previous year, or (2) if the consumer or customer has already paid a higher bill due to a concealed leak, be reimbursed in an amount equal to fifty percent of the excess caused by such leakage above the average monthly bill for the previous year, provided the conditions of consumption and service used are the same for both periods of consumption if the leaking water returned to the sanitary sewer. The consumer or customer shall be given a full credit on the sewer portion based upon the monthly average for the previous year, the conditions of consumption and service being the same for both periods of consumption if the leaking water did not return to the sanitary sewer. In no case shall the adjusted bill for single-family residential dwellings be more than twice the average monthly bill. Under no circumstances will a leak adjustment be given more than twice during a calendar year unless approved by the director or proper officials of the department.

Customers requesting an adjustment to their bill for excessive water and/or sewerage usage caused by the act of vandalism shall provide in writing all facts known regarding the act. It shall be within the discretion of officials of the department to decide the amount of the adjustment if warranted.

B. It shall be within the discretion of the department to decide what constitutes a concealed leak; provided, that in no case where there is water-cooled refrigerating equipment or other equipment, which, by its characteristics, is liable at any time to waste or use abnormal quantities of water, shall adjustments reducing water bills or combined water and sewerage bills be made.

C. No consumer using metered water shall be entitled to any reduction when he has been notified by an employee of the department of the existence of a leak within his plumbing and fails to take steps to have the same repaired immediately. (Amdt. 1 to Ord. BL2007-1435 § 2, 2007; Ord. BL2007-1435 § 2, 2007; Ord. 94-1241 §§ 1, 2, 1994; prior code § 40-1-125)

15.48.190 Adjustments—Errors in meter readings.

The department shall have the right to readjust or correct bills where errors in meter readings have been established, and such correction shall be made upon the basis of the correctly established reading as it should have been had not the error been made. (Prior code § 40-1-122)

15.48.200 Estimating bill—Defective meters.

Where meters are found to be leaking against the consumer or customer, so as definitely to affect the consumption of water, they shall be considered defective, and the procedure in determining the bill to be rendered the consumer shall be the same as if the meter had been found dead or inoperative. (Prior code § 40-1-123)

15.48.210 Payment due—Net and gross bills.

The net billing of all accounts, both quarterly and monthly, shall be paid within twenty days after the billing date. After twenty days have expired, the gross bill shall then be due and payable. No discount shall thereafter be given under this chapter except as allowed in the judgment of the director or his designee upon a showing of good cause for the delay in payment. (Ord. BL2012-333 § 6, 2013; prior code § 40-1-129)

15.48.220 Payment—Time extensions—Restoration of service.

A. Any extension of time of payment of any net or gross bill shall be granted only by the proper officials of the department upon the presentation of satisfactory and sufficient reason by the consumer.

B. Any customer whose water service is disconnected for failing to pay for water or sewer service rendered by the department or failing to follow the requirements of this chapter or the department's rules and regulations must pay a reconnection charge in the amount of sixty dollars. No water service disconnected under this section shall be reconnected until the responsible customer has paid the full amount owed the department, including the reconnection charge. (Ord. BL2019-45 § 12, 2019; Ord. BL2012-333 § 7, 2013; Ord. 93-567 § 1 (part), 1993; prior code § 40-1-130)

15.48.230 Delinquent bills—Discontinuance of service—Service charges.

The water service of any customer who, despite proper notice, has failed to pay for water or sewer service when and as required under this chapter or the department's rules and regulations may be disconnected by the department. Such customer shall become liable to pay the reconnection charge specified in section 15.48.220(B) at the time when an employee of the department is dispatched for the purpose of disconnecting the customer's service, regardless of whether the disconnection is accomplished. (Ord. BL2012-333 § 8, 2013; Ord. 93-567 § 1 (part), 1993; prior code § 40-1-131)

15.48.240 Restoration of service following payment of account.

Whenever any delinquent consumer or customer, whose supply of water has been turned off, pays the sum due into the department, the department, without delay, shall have the supply turned on; provided, that the consumer or customer shall have complied with all rules and regulations of the department pertaining to the supplying of water to consumers or water and sewerage service to customers. (Prior code § 40-1-132)

15.48.250 Unauthorized reconnection—Disconnection of supply pipes.

When the water supplied to any person, whether metered or unmetered, has been cut off for nonpayment of the water bill or of the combined water and sewerage bill, and is afterwards found turned on, without the knowledge or consent of the department, the supply pipe to such premises shall be disconnected at the main, and water shall not again be turned on until the entire amount due for water or sewerage, or both, by the party liable, has been paid, together with the costs of closing and opening the pipes at the main, which charge for costs shall not exceed actual costs incurred by the department, pursuant to Section 2.40.110, provided, however, in the event said costs exceed the amount. (Amdt. 1 to Ord. 94-1243, 2/7/95; Ord. 94-1243 § 1, 1995; prior code § 40-1-133)

15.48.260 Payment—Returned check charge.

A handling charge of thirty dollars shall be assessed against the maker or drawer of any check that is dishonored by the financial institution on which the check is drawn. (Ord. BL2012-333 § 9, 2013; Ord. 93-583 § 2, 1993; Ord. 93-513 § 2, 1993)

15.48.270 Reinstatement charge following temporary disconnection.

The charge for reconnecting water service that has been disconnected at the request of the customer shall be thirty-five dollars if service is reconnected on the same day as requested and twenty-five dollars if reconnected on any subsequent day. (Ord. BL2012-333 § 10, 2013; Ord. 93-972 § 2, 1993)

15.48.280 Reserved.

Editor's note—Ord. BL2012-333, § 11, adopted Feb. 5, 2013, repealed § 15.48.280, which pertained to reconnection charges and derived from Ord. BL2007-1457 § 10, adopted 2007.

15.48.290 New account connection—Same day service charge.

In the event a customer establishes a new account for water service, the department shall bill and collect a charge of thirty-five dollars from such customer if connection is requested and accomplished on the same day the customer becomes eligible for service. (Ord. BL2007-1457 § 11, 2007)

15.48.300 New water meter installation inspection charge.

The department shall develop a schedule of charges for services performed in connection with inspection, maintenance and repair of meters. The schedule of charges shall not exceed the department's actual costs incurred in providing such services. The department shall bill and collect in accordance with the schedule of charges, which may be amended from time to time to reflect changes in the department's actual costs of providing the services contemplated herein. A copy of the schedule of charges, and any change thereto, shall be filed with the metropolitan clerk, furnished to each member of the metropolitan council and made available upon request to any citizen of Davidson County. Charges under this subsection may be waived pursuant to a written departmental policy encouraging water conservation, environmental stewardship and other practices that benefit the metropolitan government. (Ord. BL2022-1374 § 1, 2022; Ord. BL2019-45 § 13, 2019; Ord. BL2007-1457 § 12, 2007)

Chapter 15.52

WATER AND SEWER SYSTEM EXTENSIONS

Sections:

15.52.010	**Applications—Approval—Timely reports to council.**
15.52.020	**Extensions in new subdivisions—Approval required.**
15.52.030	**Installation—Compliance with all regulations.**
15.52.040	**Eligibility for use—Conveyance to metropolitan government.**
15.52.050	**Council approval of extensions, additions, improvements, or works.**

15.52.010 Applications—Approval—Timely reports to council.

A. Applications for water main extensions or sewer extensions to the water and sewerage system of the metropolitan government shall be made on a standard form of application prescribed by the director. The director of the department of water and sewerage services shall be empowered to authorize extensions to the water and sewerage system, provided the following conditions are met:

1. That said extension is in conformance with the master plan for the respective system as promulgated by the director and approved by the council;

2. That the plans and specifications for such extension shall be in full conformance with the current standards of the metropolitan department of water and sewerage services as determined by the director, and shall bear the approval of all required local, state, and federal reviewing agencies;

3. That the necessary rights-of-way and easements for the extensions shall be in hand and in such form as required by the director;

4. That all construction work shall be subject to the inspection of the department of water and sewerage services or his authorized agent, and that the facility will not be accepted for operation and maintenance until it is fully complete and in full conformance with the department's standards;

5. That the entire cost of the construction and inspection shall be borne by the developer and that no metropolitan government funds will be utilized for the construction of said extension.

B. Further, the director of the department of water and sewerage services shall make timely reports to the council of all such extensions so approved within thirty days of such approval, and submit to the council on an annual basis for the acceptance by the council all extensions so constructed.

C. Notwithstanding the provisions of subsection A. of this section to the contrary, in the interest of public health and safety, the department of water and sewerage services shall have the authority to construct extensions to the water system to serve existing private residential properties constructed prior to the year 2006 that are currently being served by well water upon obtaining the necessary rights-of-way and permanent and temporary easements for the extensions, provided that the existing water infrastructure in the area is sufficient so that the new water main can be connected to other water mains that are already in place with high water turnover. The department of water and sewerage services is further authorized to negotiate and enter into financing agreements with the new customers being served by the extension to the water system whereby new customers will pay a surcharge that will reimburse the capital expense incurred by the department in extending the water lines. Such form agreements shall be subject to approval of the metropolitan council by a resolution receiving twenty-one affirmative votes. (Ord. BL2014-995 § 1, 2015; prior code § 40-1-192)

15.52.020 Extensions in new subdivisions—Approval required.

A. No application for water main or sewer extensions to the water and sewerage system of the metropolitan government in a new subdivision shall be accepted by the director unless the subdivision in which the extension is to be made has prior preliminary approval of the metropolitan planning commission.

B. On approval of the water main for sewer extension by the metropolitan planning commission, the director of water and sewer services shall thereafter issue the necessary permits for the extension of the water or sewer lines. If, in the opinion of the director, the approval by the planning commission contravenes with departmental master plan, rules or regulations, he shall forthwith submit the proposed extension to the metropolitan council by ordinance for approval or rejection. (Prior code § 40-1-193)

15.52.030 Installation—Compliance with all regulations.

All component parts of a water supply or sewerage and sewage treatment system shall be installed in accordance with all ordinances, rules and regulations pertaining to its consumers and customers. (Prior code § 40-1-194)

15.52.040 Eligibility for use—Conveyance to metropolitan government.

A. All component parts of a water supply or sewerage and sewage treatment system, together with the land and easements upon or on which it is located and which are necessary to the operation and maintenance of water supply or sewerage and sewage treatment system extensions, and all appurtenances belonging thereto which are installed by other than the metropolitan government shall be conveyed to the metropolitan government and shall become the property of the metropolitan government or shall be determined to be ready for use by the department of water and sewerage services before they become eligible for use.

B. The department of water and sewerage services is authorized to accept the conveyance of water and sewage lines from developers of private properties prior to the completion of casting adjustments of manholes and valve covers as required by this section upon payment by the developers of the estimated costs of such adjustments as established by the department.

C. The department shall develop a schedule of charges for services performed in connection with private sewer extensions. The schedule of charges shall not exceed the department's actual costs incurred in providing such services. The department shall bill and collect in accordance with the schedule of charges, which may be amended from time to time to reflect changes in the department's actual costs of providing the services contemplated herein. A copy of the schedule of charges, and any change thereto, shall be filed with the metropolitan clerk, furnished to each member of the metropolitan council and made available upon request to any citizen of Davidson County. Charges under this subsection may be waived pursuant to a written departmental policy encouraging water conservation, environmental stewardship and other practices that benefit the metropolitan government. (Ord. BL2019-45 § 14, 2019; Ord. 89-1020 §§ 1, 2, 1989; prior code § 40-1-195)

15.52.050 Council approval of extensions, additions, improvements, or works.

Notwithstanding other provisions of this title, approvals required from the metropolitan council for water and sewer system extensions, additions, improvements, or other works may be granted by resolution, as authorized under Tennessee Code Annotated, section 7-35-406(a)(2). (Ord. BL2024-345 § 1, 2024)

Chapter 15.56

AIR CONDITIONING AND REFRIGERATION

Sections:

15.56.010	**Effect on other building regulations.**
15.56.020	**Installation—Permit required—Exceptions.**
15.56.030	**Application for permit.**
15.56.040	**Installation—Regulations.**
15.56.050	**Use of public waters restricted—Conservation regulations.**
15.56.060	**Violation—Discontinuance of water.**

15.56.010 Effect on other building regulations.

This chapter is not to be construed as relieving any permittee under this chapter from complying with metropolitan government building laws and from obtaining proper permits required under such building laws. (Prior code § 40-1-163)

15.56.020 Installation—Permit required—Exceptions.

No person shall install, remodel or add to any air conditioning or refrigerating system which uses water from the metropolitan government water supply without first having procured a written permit therefor from the department; provided, that this section shall not apply to systems with a total rated capacity of less than two tons per twenty-four hours. (Prior code § 40-1-164)

15.56.030 Application for permit.

Application for a permit required by Section 15.56.020 shall be made to the director and shall provide such information concerning the proposed equipment and the installation thereof as may be required by the director. (Prior code § 40-1-165)

15.56.040 Installation—Regulations.

A. On air conditioning or refrigeration installations which operate with the use of water directly from the public supply, every direct connection shall be equipped with a suitable brass body, brass-fitted check valve installed in the branch supply line to each unit.

B. Discharge connections for the disposal of wastewater shall be in strict accordance with applicable rules and regulations of state and local health and regulatory bodies.

C. Cooling waters which are to be used for other purposes shall be provided with free, above the rim, discharge before entering other equipment; otherwise, permission shall be obtained in writing from the director, approving the proposed connection and use.

D. On installations other than those described above, there shall be a physical break between the public supply piping and the piping of the installation, arranged so as to make impossible back siphonage to the public supply system. (Prior code § 40-1-167)

15.56.050 Use of public waters restricted—Conservation regulations.

A. No water from the public supply shall be used by any air conditioning or refrigeration system having a total rated capacity of two tons per twenty-four hours and above unless such air conditioning or refrigerating system is equipped with evaporative condensers, cooling towers, spray ponds or other approved water cooling equipment. This equipment shall be of sufficient capacity to insure that the maximum requirements for makeup water when operating under full loading at maximum summer temperatures will not exceed 0.2 gallons per minute per ton of capacity; provided, that systems with a total rated capacity of less than two tons per twenty-four hours may use water from the public supply if equipped with an automatic valve on each unit which will stop the flow of water when the unit is shut down and throttle the flow of water down to the momentary requirements of the system.

B. Water regulating devices which will minimize the waste of water shall be installed on all manufacturing processes which require the use of water from the public supply.

C. In the event any person maintains such air conditioning or refrigerating equipment described in this section which is supplied with water from a source other than the public supply, but who has a service connection to the metropolitan government's sewerage system into which excessive use of water by such air conditioning or refrigerating equipment would discharge, then, such person shall be subject to all regulations prescribed in this section for the conservation of water the same as if they were obtaining water from the public supply. (Prior code § 40-1-166)

15.56.060 Violation—Discontinuance of water.

In addition to any other penalty imposed for any violation of this chapter, the director shall have the right to discontinue metropolitan government water service to any premises upon which there is found to exist a violation of any provision of this chapter which might affect adversely the public health. (Prior code § 40-1-168)

Chapter 15.60

INDUSTRIAL WASTE DISCHARGES

Sections:

15.60.010 Purpose of chapter.

Article I. Discharges To Publicly Owned Treatment Works

15.60.020 Purpose of article—Specifications subject to review.
15.60.030 Construction of pretreatment plants—Plans—Permits.
15.60.040 Construction and maintenance of pretreatment facilities.
15.60.045 Additional pretreatment measures.
15.60.050 Compliance with National Pretreatment Standards required.
15.60.055 State pretreatment standards.
15.60.060 Wastewater evaluation criteria.
15.60.070 Wastewater pollutants—Maximum concentrations.
15.60.080 Prohibited pollutants.
15.60.081 Prohibition of by-pass.
15.60.082 Hazardous waste discharge.
15.60.090 Treatment plant influent pollutants—Maximum concentrations.
15.60.095 Dilution.
15.60.100 Unpolluted storm water prohibited—Exceptions.
15.60.110 Unpolluted water prohibited—Exceptions.
15.60.120 Waste from garbage grinders prohibited—Exceptions.
15.60.125 Food service establishments—Control of fats, oils and grease (FOG) discharges.
15.60.126 Multi-dwelling units/apartments—Control of fats, oils and grease (FOG) discharges.
15.60.130 Liquid waste transport trucks—Permit requirements.
15.60.140 Holding tank and hauled waste—Permit required.
15.60.150 Radioactive waste prohibited—Exceptions.
15.60.160 Direct discharge into manhole—Permit required.
15.60.170 Accidental discharge—Safeguards—Special permit conditions for past offenders.
15.60.175 Prevention of accidental and/or slug discharges.
15.60.180 Temporary exceptions—Procedure.
15.60.190 Dangerous discharge—Emergency procedures.

Article II. Discharge Permits

15.60.200 Applicability of article.
15.60.210 Application—Requirements.
15.60.220 Application—Report requirements.
15.60.230 Incomplete applications—Notice to correct—Denial.
15.60.240 Application—Recommendation of special conditions.
15.60.250 Special permit conditions—Notice to applicant—Procedure to file objections.
15.60.252 Individual wastewater discharge permits.
15.60.255 Wastewater discharge permits: General permits.
15.60.258 Application signatories and certifications.
15.60.260 Unresolved disputes—Hearing.
15.60.270 Compliance schedule and reports—Requirements.
15.60.275 Notification requirements.
15.60.280 Records of monitoring activities required—Contents.
15.60.285 Monitoring procedures.
15.60.288 Repeat sampling and reporting/notice of violation.
15.60.290 Records of monitoring activities—Retention for four years—Subject to inspection.
15.60.300 Term—Renewal—Modifications.
15.60.310 Transfer—Approval required.
15.60.320 Revocation.
15.60.325 Regulation of waste from other jurisdictions.

Article III. Administration And Enforcement

15.60.330 Director—Authority and responsibilities.
15.60.340 Monitoring and inspections.
15.60.350 Wastewater hearing authority.
15.60.360 Adjudicatory hearing procedures.
15.60.370 Violation—Public nuisance.
15.60.380 Violation—Notice.
15.60.385 Significant noncompliance.

15.60.390 Enforcement response manual.
15.60.400 Show-cause hearing before Metro wastewater hearing authority.
15.60.410 Injunctive relief.
15.60.420 Assessment of damage to user.
15.60.430 Applicability of state and federal regulations.
15.60.440 Emergency termination of service.
15.60.450 Punitive action—Confirmation of authority required—Exceptions.
15.60.460 Violation—Penalty.
15.60.465 Right of entry.
Article IV. Charges
15.60.470 Grease collection device inspection charge.
15.60.480 Plan and permit review—Schedule of charges.

15.60.010 Purpose of chapter.

A. The purpose of this chapter is to set uniform requirements for users of the Metropolitan Government of Nashville and Davidson County's (Metro) wastewater collection system and treatment works to enable Metro to comply with the provisions of the Clean Water Act and other applicable federal laws and regulations, Tennessee's Water Quality Control Act and other applicable state laws and regulations, and to provide for the public health and welfare by regulating the quality of wastewater discharged into Metro's wastewater collection system and treatment works.

B. This chapter provides a means for determining wastewater volumes, constituents and characteristics, the setting of charges and fees, and the issuance of permits to certain users. This chapter establishes effluent limitations and other discharge criteria and provides that certain users shall pretreat waste to prevent the introduction of pollutants into the publicly owned treatment works, including the collection and transmission system (hereinafter referred to as POTW), which may interfere with the operation of the POTW or contaminate the sewage sludge; and to prevent the introduction of pollutants into the POTW which may pass through the treatment works into the receiving waters or the atmosphere, or otherwise be incompatible with the treatment works; to protect both POTW personnel who may be affected by wastewater and sludge in the course of their employment and the general public; to enable Metro to comply with its National Pollutant Discharge Elimination System permit conditions, sludge use and disposal requirements, and any other federal or state laws to which the publicly owned treatment works is subject; and to improve opportunities to recycle and reclaim wastewaters and sludge resulting from wastewater treatment. This chapter provides measures for the enforcement of its provisions and abatement of violations thereof. This chapter establishes a wastewater hearing authority and establishes its duties and establishes the duties of the director of the department of water and sewerage services to ensure that the provisions of this chapter are administered fairly and equitably to all users. Metro reserves the right to establish, by ordinance or in individual wastewater discharge permits, or in general permits, more stringent standards or requirements on discharges to the POTW consistent with the purpose of this ordinance. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-185)

Article I. Discharges to Publicly Owned Treatment Works

15.60.020 Purpose of article—Specifications subject to review.

This article establishes limitations and prohibitions on the quantity and quality of wastewater which may be lawfully discharged into the publicly owned treatment works. Pretreatment of some wastewater discharge will be required to achieve the goals established by this chapter and the Clean Water Act. The specified limitation set forth in Section 15.60.070, the Operational Division Policy No. 2008-01 for local limits and wastewater treatment plant protection criteria, and other prohibitions and limitations of this chapter, are subject to change to enable Metro to provide efficient wastewater treatment to protect the public health and the environment, and to enable Metro to meet requirements contained in its NPDES permit. The wastewater hearing authority shall review such limitations from time to time to ensure that they are sufficient to protect the operation of the treatment works, that they are sufficient to enable the treatment works to comply with NPDES permit, that they are sufficient to provide for a cost-effective means of operating the treatment works, and that they are sufficient to protect the public health and the environment. The authority shall recommend changes or modifications to the director as necessary. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-186(a))

15.60.030 Construction of pretreatment plants—Plans—Permits.

Plans, specifications and operating procedures for such wastewater pretreatment facilities shall be prepared by a registered engineer and shall be submitted to the director for review in accordance with accepted engineer-

ing practices. The director shall review such plans within forty-five days and shall recommend to the user any appropriate changes. Prior to beginning construction of the pretreatment facility, the user shall submit a set of construction plans and specifications to be maintained by the director. Prior to beginning construction, the user shall also secure such building, plumbing or other permits that may be required by this Code. The user shall construct the pretreatment facility within the time provided in the user's wastewater discharge permit. Following completion of construction, the user shall provide the director with as-built drawings to be maintained by the director. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-186(o))

15.60.040 Construction and maintenance of pretreatment facilities.

Users of the POTW shall design, construct, operate and maintain wastewater pretreatment facilities whenever necessary to reduce or modify the user's wastewater constituency to achieve compliance with the limitations in wastewater strength or prohibition set forth in Sections 15.60.060, 15.60.070 and 15.60.080 to meet applicable National Pretreatment Standards, or to meet any other wastewater conditions or limitations contained in the user's wastewater discharge permit. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-186(n)).

15.60.045 Additional pretreatment measures.

A. Whenever deemed necessary, Metro may require users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate sewage wastestreams from industrial wastestreams, and such other conditions as may be necessary to protect the POTW and determine the user's compliance with the requirements of this ordinance.

B. Metro may require any person discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. An individual wastewater discharge permit, or a general permit, may be issued solely for flow equalization. (Ord. BL2010-678 § 2, 2010)

15.60.050 Compliance with National Pretreatment Standards required.

Certain industrial users are now or hereafter shall become subject to National Pretreatment Standards promulgated by the Environmental Protection Agency specifying quantities or concentrations of pollutants or pollutant properties which may be discharged into the POTW. All industrial users subject to a National Pretreatment Standard shall comply with all requirements of such Standard and shall also comply with any additional or more stringent limitations contained in the general pretreatment regulations (40 CFR Part 403), the pretreatment standards found at 40 CFR Chapter I, Subchapter N, Parts 405-471, in this chapter, or in their permit. Compliance with National Pretreatment Standards for existing sources subject to such Standards or for existing sources which hereafter become subject to such standards shall be within three years following promulgation of the standards unless a shorter compliance time is specified in the standard. Compliance with National Pretreatment Standards for new sources shall be required upon promulgation of the standard. Except where expressly authorized by an applicable National Pretreatment Standard, no industrial user shall increase the use of process water or in any way attempt to dilute a discharge as a partial or complete substitution for adequate treatment to achieve compliance with such standard. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-186(d))

15.60.055 State pretreatment standards.

Industrial users must comply with state pretreatment requirements (Tennessee Rule 1200-4-14). (Ord. BL2010-678 § 2, 2010)

15.60.060 Wastewater evaluation criteria.

A. The wastewater of every industrial user shall be evaluated upon the following criteria:

1. Wastewater containing any element or compound which is not adequately removed by the treatment works which is known to be an environmental hazard;

2. Wastewater causing a discoloration or any other condition in the quality of Metro's treatment works effluent such that receiving water quality requirements established by law cannot be met;

3. Wastewater causing conditions at or near Metro's treatment works which violate any statute, rule or regulation of any public agency of this state or the United States;

4. Wastewater containing any element or compound known to act as a lacrimator, known to cause nausea, or known to cause odors constituting a public nuisance;

5. Wastewater causing interference with the effluent or any other product of the treatment process, residues, sludge or scum causing them to be unsuitable for reclamation and reuse or causing interference with the reclamation process;

6. Wastewater having constituents and concentrations in excess of those listed in Section 15.60.070 or cause a violation of the limits in Section 15.60.090.

B. The director shall recommend and the wastewater hearing authority shall approve reasonable limitations or prohibitions in the wastewater discharge permit of any industrial user that discharges wastewater violating any of the above criteria as shall be reasonable to achieve the purpose and policies of this chapter. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-186(c))

15.60.070 Wastewater pollutants—Maximum concentrations.

No person or user shall discharge wastewater in excess of the pollutant concentrations identified in the Operational Division Policy No. 2008-01 for Local Limits (TABLE A), unless:

A. An exception has been granted the user under the provisions of Section 15.60.180; or

B. The wastewater discharge permit of the user provides, as a special permit condition, a higher interim concentration level in conjunction with a requirement that the user construct a pretreatment facility or institute changes in operation and maintenance procedures to reduce the concentration of pollutants to levels not exceeding the standards set forth in the table within a fixed period of time.

Local Limits: Metro is authorized to establish Local Limits pursuant to Tennessee Rule 1200-4-14-.05(3).

Metro may develop best management practices (BMPs) by ordinance or in individual wastewater discharge permits, or general permits, to implement Local Limits and the requirements of Section 15.60.070. (Ord. BL2010-678 § 2, 2010)

15.60.080 Prohibited pollutants.

A. No person shall introduce into the publicly owned treatment works any of the following pollutants which, acting either alone or in conjunction with other substances present in the POTW, interfere with the operation of the POTW as follows:

1. Pollutants that create a fire or explosion hazard in the POTW, including, but not limited to, wastestreams with a closed cup flashpoint of less than 140 degrees Fahrenheit or 60 degrees Centigrade using the test methods specified in 40 CFR 261.21;

2. Pollutants which cause corrosive structural damage to the POTW, but in no case discharges with a pH lower than 5.0 or higher than 10.0;

3. Solid or viscous pollutants in amounts which cause obstruction to the flow of the sewers, or other interference with the operation of or which cause injury to the POTW, including waxy or other materials which tend to coat and clog a sewer line or other appurtenances thereto;

4. Any pollutant, including oxygen-demanding pollutants (BOD, etc.), released in a discharge of such volume or strength as to cause interference in the POTW;

5. Heat in amounts which will inhibit biological activity in the POTW resulting in interference, but in no case heat such quantities that the temperature of the influent at the treatment works exceeds 40 degrees Centigrade (104 degrees Fahrenheit). Unless a higher temperature is allowed in the user's wastewater discharge permit, no user shall discharge into any sewer line or other appurtenance of the POTW wastewater with a temperature exceeding 65.5 degrees Centigrade (150 degrees Fahrenheit);

6. Petroleum oil, non-biodegradable cutting oil or products of mineral oil origin in amounts that will cause interference or pass through;

7. Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems;

8. Any trucked or hauled pollutants except at discharge points designated by the POTW;

9. Noxious or malodorous liquids, gases, solids, or other wastewater which, either singly or by interaction with other wastes, are sufficient to create a public nuisance or a hazard to life, or to prevent entry into the sewers for maintenance or repair;

10. Wastewater which imparts color which cannot be removed by the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions, which consequently imparts color to the treatment plant's effluent, thereby violating Metro's NPDES permits;

11. Wastewater containing any radioactive wastes or isotopes except in compliance with applicable state or federal regulations;

12. Stormwater, surface water, ground water, artesian well water, roof runoff, subsurface drainage, swimming pool drainage, condensate, deionized water, noncontact cooling water, and unpolluted wastewater, unless specifically authorized by Metro;

13. Sludges, screenings, or other residues from the pretreatment of industrial wastes;

14. Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent to fail toxicity test;

15. Detergents, surface-active agents, or other substances which that might cause excessive foaming in the POTW;

16. Unused or out-dated pharmaceuticals;

17. Antifreeze or antifreeze mixtures;

Pollutants, substances, or wastewater prohibited by this section shall not be processed or stored in such a manner that they could be discharged to the POTW.

B. The foresaid pollutants represent a general description of harmful or dangerous conditions and are in addition to such specific pollutants as may be identified and added from time to time to Sections 15.60.070 and 15.60.090 or the industrial user's permit. (Prior code § 40-1-186(b))

C. General prohibitions. No user shall introduce or cause to be introduced into the POTW any pollutant or wastewater which causes pass through or interference. These general prohibitions apply to all users of the POTW whether or not they are subject to categorical pretreatment standards or any other national, state, or local pretreatment standards or requirements. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-186(b))

15.60.081 Prohibition of by-pass.

Bypass means the intentional diversion of wastestreams from any portion of an industrial user's treatment facility. Bypass is prohibited, and the department of water services may take enforcement action against an industrial user for a bypass, unless;

A. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;

B. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime of preventative maintenance; and

C. The industrial user submitted notices as required. If an industrial user knows in advance of the need for a bypass, it shall submit prior notice to the department, if possible at least ten days before the date of the bypass. An industrial user shall submit oral notice of an unanticipated bypass that exceeds applicable pretreatment standards to the department within 24 hours from the time the industrial user becomes aware of the bypass. A written submission shall also be provided within 5 days of the time the industrial user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The department may waive the written report on a case-by-case basis if the oral report has been received within 24 hours. (Ord. BL2010-678 § 2, 2010)

15.60.082 Hazardous waste discharge.

The industrial user shall notify the department of water services, the EPA regional waste management division director, and state hazardous waste authorities in writing of any discharge into the POTW of a substance, which, if otherwise disposed of, would be a hazardous waste under 40 CFR part 261. Such notification must include the name of the hazardous waste as set forth in 40 CFR part 261, the EPA hazardous waste number, and type of discharge. Additional notification requirements may apply as required by 40 CFR 403.12 (p). (Ord. BL2010-678 § 2, 2010)

15.60.090 Treatment plant influent pollutants—Maximum concentrations.

No person or user shall discharge wastewater that will cause the influent concentration at any Metro Wastewater Treatment Plant to exceed the pollutant levels identified in Operational Division Policy No. 2008-01 for Wastewater Treatment Plant Protection Criteria - Treatment Plant Influent - Maximum Concentrations (TABLE B). The director shall monitor the treatment works influent for each pollutant identified in the Operational Division Policy No. 2008-01 (TABLE B). In the event that the influent at the treatment works reaches or exceeds the levels established by said table, the director shall initiate technical studies to determine the cause of the influent violation and shall initiate such remedial measures as are necessary, including but not limited to the establishment of new or revised pretreatment levels for these parameters. The director may also change any of these criteria in the event the POTW effluent standards are changed or in the event changes are deemed advisable for effective operation of the POTW. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-186(m))

15.60.095 Dilution.

No user shall ever increase the use of process water, or in any way attempt to dilute a discharge, as a partial or complete substitute for adequate treatment to achieve compliance with a discharge limitation unless expressly authorized by an applicable pretreatment standard or requirement. Metro may impose mass limitations on users who are using dilution to meet applicable pretreatment standards or requirements, or in other cases when the imposition of mass limitations is appropriate. (Ord. BL2010-678 § 2, 2010)

15.60.100 Unpolluted storm water prohibited—Exceptions.

Stormwater, groundwater, rainwater, street drainage, rooftop drainage, basement drainage, subsurface drainage, or yard drainage, if unpolluted, shall not be dis-

charged through direct or indirect connections to a community sewer unless a storm sewer or other reasonable alternative for removal of such drainage does not exist, and then only when such discharge is permitted by the user's wastewater discharge permit and the appropriate fee is paid for the volume thereof. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-186(e))

15.60.110 Unpolluted water prohibited—Exceptions.

Unpolluted water, including but not limited to cooling water or process water, shall not be discharged through direct or indirect connections to a community sewer except on the same conditions as provided in Section 15.60.100. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-186(f))

15.60.120 Waste from garbage grinders prohibited—Exceptions.

A. Waste from garbage grinders shall not be discharged into a community sewer except where generated in preparation of food consumed on the premises, and then only where applicable fees, therefore are paid. Such grinders must shred the waste to a degree that all particles will be carried freely under normal flow conditions prevailing in the community sewers. Garbage grinders shall not be used for the grinding of plastic, paper products, inert materials or garden refuse.

B. This section shall not apply to domestic residences. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-186(h))

15.60.125 Food service establishments—Control of fats, oils and grease (FOG) discharges.

All food service establishments are required to comply with Operational Division Policy No. 2004-01: Metro Water Services Fats, Oils and Grease Management Policy. (Ord. BL2010-678 § 2, 2010)

15.60.126 Multi-dwelling units/apartments—Control of fats, oils and grease (FOG) discharges.

Any multi-dwelling unit, or apartment building or complex shall be subject to enforcement action for discharging FOG that contributes to a sanitary sewer overflow event, or obstruction to the sewer system. (Ord. BL2010-678 § 2, 2010)

15.60.130 Liquid waste transport trucks—Permit requirements.

A. No person owning vacuum or cesspool pump trucks or other liquid waste transport trucks shall discharge directly or indirectly such sewage into the POTW unless such person shall first have applied for and received a truck discharge operation permit from the director or his designated representative. All applicants for a truck discharge operation permit shall complete such forms as required by the director, pay appropriate fees, and shall agree in writing to abide by the provisions of this chapter and any special conditions or regulations established by the director.

B. The owners of such vehicles shall affix and display the permit number on the side of each vehicle used for such purposes.

C. Such permits shall be valid for a period of one year from the date of issuance; provided that, such permit shall be subject to revocation by the director for violation of any provision of this chapter or reasonable regulation established by the director.

D. Such permits shall be limited to the discharge of domestic sewage waste containing no industrial waste.

E. The director shall designate the locations and times where such trucks may be discharged and may refuse to accept any truckload of waste in his absolute discretion where it appears that the waste could interfere with the effective operation of the treatment works or any sewer line or appurtenance thereto.

F. The owner of a truck discharge operation permit shall provide manifest to the POTW that states the source of the domestic waste they wish to discharge, the volume of wastewater from each source, and whether any industrial waste is included in the wastewater.

G. The owner of the truck discharge operation permit shall purchase a bond sufficient to cover his potential liability for violating his permit. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-186(j))

15.60.140 Holding tank and hauled waste—Permit required.

No person shall discharge any other holding tank waste into the POTW unless he shall have applied for and have been issued a permit by the director. Unless otherwise allowed under the terms and conditions of the permit, a separate permit must be secured for each separate discharge. The permit shall state the specific location of discharge, the time of day the discharge is to occur and the volume of the discharge, and shall limit the wastewater constituents and characteristics of the discharge. Such user shall pay any applicable charges or fees therefore and shall comply with the conditions of the

permit issued by the director. Provided, however, no permit will be required to discharge domestic waste from a recreational vehicle holding tank provided such discharge is made into an approved facility designed to receive such waste. (Ord. BL2010-678 § 2, 2010; prior code § 40-1-186(k))

15.60.150 Radioactive waste prohibited—Exceptions.

No person shall discharge or permit to be discharged any radioactive waste into a community sewer except:

A. When the person is authorized to use radioactive materials by the Tennessee Department of Public Health or the Nuclear Regulatory Commission;

B. When the waste is discharged in strict conformity with applicable laws and regulations of the aforementioned agencies, or any other agency having jurisdiction; and

C. When a copy of permits received from said regulatory agencies have been filed with the director. (Ord. BL2010-678 § 2, 2010; prior code § 40-1-186(g))

15.60.160 Direct discharge into manhole—Permit required.

No person shall discharge any substance directly into a manhole or other opening in a community sewer other than through an approved building sewer unless he shall have been issued a temporary permit by the director. The director shall incorporate in such temporary permits such conditions as he deems reasonably necessary to ensure compliance with the provisions of this chapter, and the user shall be required to pay applicable charges and fees, therefore. (Ord. BL2010-678 § 2, 2010; prior code § 40-1-186(i))

15.60.170 Accidental discharge—Safeguards—Special permit conditions for past offenders.

A. All industrial users shall provide such facilities and institute such procedures as are reasonably necessary to prevent or minimize the potential for accidental discharge into the POTW of waste regulated by this chapter from liquid or raw material storage areas, from truck and rail car loading and unloading areas, from in-plant transfer or processing and materials handling area, and from diked areas or holding ponds of any waste regulated by this chapter.

B. The wastewater discharge permit of any user who has a history of significant leaks, spills or other accidental discharge of waste regulated by this chapter shall be subject, on a case-by-case basis, to a special permit condition or requirement for the construction of facilities or establishment of procedures which will prevent or minimize the potential for such accidental discharge. Plans, specifications and operating procedures for such special conditions shall be developed by the user and submitted to the director for review under the provisions of Section 15.60.030. (Ord. BL2010-678 § 2, 2010; prior code § 40-1-186(p))

15.60.175 Prevention of accidental and/or slug discharges.

For the purposes of this subsection, a slug discharge is any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge. All industrial users shall provide such facilities and institute such procedures as are reasonably necessary to prevent or minimize the potential for accidental discharge into the POTW of waste regulated by this permit from liquid or raw material storage areas, from truck and rail car loading and unloading areas, from in-plant transfer or processing and materials handling areas, from diked areas or holding ponds. The permittee shall notify the POTW immediately by telephone of any slug loadings, spills, bypasses, upsets, etc., and a follow up written notification within five days, as prescribed in 40 CFR 403.8(f)(2)(vi).

*Significant industrial users are required to notify Metro immediately of any changes at its facility affecting the potential for a slug discharge. Metro must evaluate all SIUs for the need for a slug control plan or other actions. Any new SIUs shall be evaluated for the need of a slug control plan within twelve (12) months of being permitted by the department. Existing SIUs may be required to review and resubmit a revision of the slug control plan at the request of the department. Should the department decide that a slug control plan is needed by the industrial user, the plan shall contain, at a minimum, the following elements;

A. Description of discharge practices, including non-routine batch discharges;

B. Description of stored chemicals;

C. Procedures for immediately notifying the POTW of slug discharges, including any discharge that would violate a prohibition under 40 CFR 403.5(b), with procedures for follow-up written notification within five days;

D. If deemed necessary by the director, procedures to prevent adverse impact from accidental spills, including inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site run-off, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants (including

solvents), and/or measures and equipment for emergency response. (Ord. BL2023-78 § 1, 2023; Ord. BL2010-678 § 2, 2010)

15.60.180 Temporary exceptions—Procedure.

A. Purpose. This section provides a method for industrial users subject to the limitation on wastewater strength parameters listed in Article II of this chapter to apply for and receive a temporary exception to the discharge level for one or more parameters.

B. Time of application. Applicants for a temporary exception shall apply for same at the time they are required to apply for a wastewater discharge permit or a renewal thereof; however, the director shall allow applications at any time unless the applicant shall have submitted the same or substantially similar application within the preceding year and the same shall have been denied by the authority.

C. Written applications. All applications for an exception shall be in writing and shall contain sufficient information for evaluation of each of the factors to be considered by the authority pursuant to subsection E. of this section.

D. Review by director. All applications for an exception shall be reviewed by the director. If the application does not contain sufficient information for complete evaluation, the director shall notify the applicant of the deficiencies and request additional information. The applicant shall have thirty days following notification by the director to correct such deficiencies. This thirty-day period may be extended by the authority upon application and for just cause shown. Upon receipt of a complete application, the director shall evaluate same within thirty days and shall submit his recommendations to the authority at its next regularly scheduled meeting.

E. Review by authority. The authority shall review and evaluate all applications for an exception and shall take into account the following factors:

1. The authority shall consider whether or not the applicant is subject to a National Pretreatment Standard containing discharge limitations more stringent than those in Article II and grant an exception only if such exception may be granted within limitations of applicable federal regulations.

2. The authority shall consider whether or not the exception would apply to discharge of a substance classified as a toxic substance under regulations promulgated by the Environmental Protection Agency under the provisions of Section 307(a) of the Act (33 U.S.C. 1317), and then grant an exception only if such exception may be granted with the limitations of applicable federal regulations.

3. The authority shall consider whether or not the granting of an exception would create conditions that would reduce the effectiveness of the treatment works, taking into consideration the concentration of said pollutant in the treatment works' influent and the design capability of the treatment works.

4. The authority shall consider whether or not the granting of an exception might cause the treatment works to violate the limitations in its NPDES permit, taking into consideration the concentration of the pollutant in the treatment works' influent and the demonstrated ability of the treatment works to consistently remove such pollutant.

5. The authority shall consider whether or not the granting of an exception would cause elements or compounds to be present in the sludge of the treatment works which would prevent sludge use or disposal by Metro or which would cause Metro to violate any regulation promulgated by EPA under the provisions of Section 405 of the Act (33 U.S.C. 1345).

6. The authority may consider the cost of pretreatment or other types of control techniques which would be necessary for the user to achieve effluent reduction, but prohibitive cost alone shall not be the basis for granting an exception.

7. The authority may consider the age of equipment and industrial facilities involved to the extent that such factors affect the quality or quantity of wastewater discharge.

8. The authority may consider the process employed by the user and process changes available which would affect the quality or quantity of wastewater discharge.

9. The authority may consider the engineering aspects of various types of pretreatment or other control techniques available to the user to improve the quality or quantity of wastewater discharge.

10. The authority may consider an application for an exception based upon the fact that water conservation measures instituted by the user or proposed by the user result in a higher concentration of particular pollutants in the wastewater discharge of the user without increasing the amount of mass of pollutants discharged. To be eligible for an exception under this paragraph, the application must show that except for water conservation measures, the applicant's discharge has been or would be in compliance with the limitations on wastewater strength set forth in Article II; however, no such exception shall be granted if the increased concentration of pollutants in the applicant's wastewater would have a significant adverse impact upon the operation of the POTW.

F. Good management practices required. The authority shall not grant an exception unless the applicant shall demonstrate to the authority that he is utilizing "good management practices" (GMP) to prevent or reduce his contribution of pollutants to the POTW. GMP's include but are not limited to preventative operating and main-

tenance procedures, schedule of activities, process changes, prohibiting of activities, and other management practices to reduce the quality or quantity of effluent discharged and to control plant site runoff, spillage, leaks and drainage from raw material storage.

G. Exception may be granted following review. The authority shall review the application for an exception at the first regularly scheduled meeting following recommendation of the director. It may grant the application for exception with such conditions or limitations as may have been recommended by the director without a hearing provided no person, including the applicant, shall object thereto, and provided further that the authority finds that the granting of the exception with such conditions as have been recommended by the director will be in compliance with the provisions of this chapter.

H. Hearing. In the event that the applicant objects to the recommendations of the director concerning conditions to be imposed upon the applicant, the authority desires a hearing to further investigate the matter, or any interested party granted permission by the authority to intervene objects to the granting of the exception, the authority shall schedule a hearing within ninety days following presentation of the matter by the director to resolve such matters. At such hearing, the applicant, the director and any intervening party shall have the right to present relevant proof by oral or documentary evidence. The procedure set forth in Section 15.60.360 shall be applicable to such a hearing. The applicant shall bear the burden of proof in such hearing.

I. Additional cost and expense.

1. The director may require any person discharging substances in strengths greater than those permitted by this chapter to pay any additional costs or expense incurred by Metro for transmission and treatment of such substances.

2. The treatment system shall be reviewed at the end of each fiscal year and appropriate surcharge rates applied to the wastewater billing.

3. Such charge for the Biochemical Oxygen Demand$_5$ (BOD_5), ammonia, suspended solids, and oil and grease will be computed using the following formula:

Surcharge ($)/P = 8.34 × (F) × (TC) × (Pa-Pm)
Surcharge ($) total = Surcharges of BOD_5 + ammonia + suspended solids and grease.

P—Parameter: BOD_5 or ammonia or suspended solids or grease.

F—Flow in millions of gallons per day.

TC—Treatment costs for servicing POTW per pound of parameter.

Pa—Parameter, actual.

Pm—Parameter, maximum.

4. Charges for other pollutants will be computed on a case-by-case basis. (Ord. BL2010-678 § 2, 2010; Ord. 2001-778 § 1, 2001; Prior code § 40-1-187, Part II (a)—(i))

15.60.190 Dangerous discharge—Emergency procedures.

A. Telephone notification. Any person causing or suffering any discharge, whether accidental or not, which presents or may present an imminent or substantial endangerment to the health and welfare of persons or to the environment, or which is likely to cause interference with the POTW, shall notify the director or his designee immediately, within one hour of becoming aware of the discharge, by telephone.

B. Written report. Within five days following such occurrence, the user shall provide the director with a detailed written report describing the cause of the dangerous discharge and measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage or other liability which may be incurred as a result of damage to the POTW, fish kills, or any other damage to person or property; nor shall such notification relieve the user of any fines, civil penalties or other liability which may be imposed by this chapter or other applicable law.

C. Notice to employees. A notice shall be permanently posted on the user's bulletin board or other prominent place advising employees whom to call in the event of a dangerous discharge. Employers shall ensure that all employees who may cause or suffer such dangerous discharge to occur are advised of the emergency notification procedure. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-188, Part II (a)—(c))

Article II. Discharge Permits

15.60.200 Applicability of article.

The provisions of this chapter are applicable to all industrial users of the POTW. Any permits issued hereunder to industrial users who are subject to or who become subject to a "National Pretreatment Standard" as that term is defined in 40 CFR Section 403.3(i) shall be conditioned upon the industrial user's also complying with all applicable substantive and procedural requirements promulgated by the Environmental Protection Agency or the state in regard to such National Pretreatment Standards. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (a))

15.60.210 Application—Requirements.

All industrial users of the POTW prior to discharging nondomestic waste into the POTW shall apply for and

obtain a wastewater discharge permit in the manner hereinafter set forth. All original applications shall be accompanied by a report containing the information specified in Section 15.60.220. All original applications shall also include a site plan, floor plan, mechanical and plumbing plans with sufficient detail to show all sewers and appurtenances in the user's premises by size, location and elevation; and the user shall submit to the director revised plans whenever alterations or additions to the user's premises affect said plans. Any currently connected user discharging waste other than domestic waste who has not heretofore filed such a report shall file the same with the director prior to twelve months from adoption of this chapter (October 7, 1980). All correspondence to Metro required by this chapter shall be addressed to the Environmental Compliance Section, Metro Department of Water and Sewerage Services, 1600 Second Avenue North, Nashville, TN 37208. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (b))

15.60.220 Application—Report requirements.

A. The report required by Section 15.60.210 above or other provisions of this title for all Industrial users shall contain in units and terms appropriate for evaluation the information listed in paragraphs (1) through (5) of subsection B below. Industrial users subject to National Pretreatment Standards shall submit to the director a report which contains the information listed in subsection B below within one hundred eighty days after the promulgation by the Environmental Protection Agency of a National Pretreatment Standard under Section 307(b) or (c)) of the Act or prior to twelve months from adoption of this title where such National Pretreatment Standards have been promulgated prior to the effective date of this title; provided that industrial users subject to the requirements of 40 CFR Section 403.12 may file with the director a copy of a report submitted to the "control authority," as defined in said section, in lieu of the report herein provided. Industrial users who are unable to achieve a discharge limit set forth in Article I of this chapter without improved operation and maintenance procedures of pretreatment shall submit a report which contains the information listed in subsection B. of this section.

B. As specified hereinabove, the report shall contain all or applicable portions of the following:

1. The name and address of the industrial user;

2. The location of such industrial user;

3. Description of operations: (a) A brief description of the nature, average rate of production (including each product produced by type, amount, processes, and rate of production), and standard industrial classifications of the operation(s) carried out by such user. This description should include a schematic process diagram, which indicates points of discharge to the POTW from the regulated processes, (b) Types of wastes generated, and a list of all raw materials and chemicals used or stored at the facility which are, or could accidentally or intentionally be, discharged to the POTW; (c) Number and type of employees, hours of operation, and proposed or actual hours of operation; (d) Type and amount of raw materials processed (average and maximum per day); (e) Site plans, floor plans, mechanical and plumbing plans, and details to show all sewers, floor drains, and appurtenances by size, location, and elevation, and all points of discharge.

4. The average and maximum flow of the discharge from such industrial user to the POTW, in gallons per day;

5. The nature and concentration of pollutants in the discharge from each regulated process from such industrial user and identification of any applicable pretreatment standards and requirements. The concentration shall be reported as a maximum or average level as provided for in the applicable pretreatment standard; if an equivalent concentration limit has been calculated in accordance with any pretreatment standard, this adjusted concentration limit shall also be submitted to the director for approval;

6. A statement, reviewed by an authorized representative of the industrial user (as defined in Section 15.04.060) and certified by a qualified professional, who shall be approved in writing by Metro, indicating whether pretreatment standards are being met on a consistent basis and, if not, whether additional operation and maintenance procedures or additional pretreatment is required for the industrial user to meet the pretreatment standards and requirements; and

7. If additional pretreatment or operation and maintenance procedure will be required to meet the pretreatment standards, then the report shall contain the shortest schedule by which the industrial user will provide such additional pretreatment. The completion date in this schedule for pollutants assigned National Pretreatment Standards shall not be later than the completion date established for the applicable National Pretreatment Standard.

8. The location for monitoring all wastes covered by the permit.

9. Measurement of pollutants: (a) The categorical pretreatment standards applicable to each regulated process and any new categorically regulated processes for existing sources. (b) The results of sampling and analysis identifying the nature and concentration, and/or mass, where required by the Standard or by Metro, of regulated pollutants in the discharge from each regulated process.

(c) Instantaneous, daily maximum and long-term average concentrations, or mass, where required, shall be reported. (d) The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in Section 15.60.285 of this ordinance. Where the Standard requires compliance with a BMP or pollution prevention alternative, the user shall submit documentation as required by Metro or the applicable Standards to determine compliance with the Standard.

10. Any other information as may be deemed necessary by Metro to evaluate the permit application.

C. For purposes of this section, when the context so indicates, the phrase "pretreatment standard" shall include either a National Pretreatment Standard or a pretreatment standard imposed as a result of the user's discharging any incompatible pollutant regulated by Article I of this chapter. For purpose of this section, the term "pollutant" shall include any pollutant identified in a National Pretreatment Standard or any incompatible pollutant identified in Article I of this chapter. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (c)).

15.60.230 Incomplete applications—Notice to correct—Denial.

The director will act only on applications that are accompanied by a report which contains all the information required in Section 15.60.220. Persons who have filed incomplete applications will be notified by the director that the application is deficient and the nature of such deficiency and will be given thirty days to correct the deficiency. If the deficiency is not corrected within thirty days or within such extended period as allowed by the director, the director shall submit the application for a permit to the authority with a recommendation that it be denied and notify the applicant in writing of such action. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (d))

15.60.240 Application—Recommendation of special conditions.

Upon receipt of complete applications, the director shall review and evaluate the applications and shall propose such special permit conditions as he deems advisable. All wastewater discharge permits shall be expressly subject to all the provisions of this title and all other applicable ordinances, laws and regulations. The director may also propose that the wastewater discharge permit be subject to one or more special conditions in regard to any of the following:

A. Pretreatment requirements;

B. The average and maximum wastewater constituents and characteristics;

C. Limits on rate and time of discharge or requirements for flow regulations and equalization;

D. Requirements for installation of inspection and sampling facilities;

E. Specifications for monitoring programs which may include sampling locations, frequency and method of sampling, number, types and standards for tests and reporting schedule;

F. Requirements for submission of technical reports or discharge reports;

G. Requirements for maintaining records relating to wastewater discharge;

H. Mean and maximum mass emission rates, or other appropriate limits when incompatible pollutants (as set forth in Article I of this chapter) are proposed or present in the user's wastewater discharge;

I. Other conditions as deemed appropriate by the director to ensure compliance with this title or other applicable ordinance, law or regulation;

J. A reasonable compliance schedule, not to extend beyond July 1, 1983, or such earlier date as may be required by other applicable law or regulation, whichever is sooner, to ensure the industrial user's compliance with pretreatment requirements or improved methods of operation and maintenance;

K. Requirements for the installation of facilities to prevent and control accidental discharge or "spills" at the user's premises;

L. The unit charge or schedule of charges and fees for the wastewater to be discharged to a community sewer. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (e))

15.60.250 Special permit conditions—Notice to applicant—Procedure to file objections.

A. Upon completion of his evaluation, the director shall notify the applicant of any special permit conditions which he proposed be included in the wastewater discharge permit.

B. The applicant shall have forty-five days from and after the date of the director's recommendations for special permit conditions to review same and file written objections with the director in regard to any special permit conditions recommended by the director. The director or his representative may but shall not be required to schedule a meeting with the applicant's authorized representative within fifteen days following receipt of the applicant's objections and attempt to resolve disputed issues concerning special permit conditions.

C. If the applicant files no objection to special permit conditions proposed by the director, or a subsequent agreement is reached concerning same, the director shall issue a wastewater discharge permit to the applicant with such special conditions incorporated therein. Otherwise, the director shall submit the disputed matters to the authority for resolution as hereinafter provided. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (f)).

15.60.252 Individual wastewater discharge permits.

An individual wastewater discharge permit shall include such conditions as are deemed reasonably necessary by director to prevent pass through or interference, protect the quality of the water body receiving the treatment plant's effluent, protect worker health and safety, facilitate sludge management and disposal, and protect against damage to the POTW.

A. Individual wastewater discharge permits must contain:

1. A statement that indicates the wastewater discharge permit's issuance date, expiration date and effective date. No permit is to exceed a five (5) year duration;

2. A statement that the wastewater discharge permit is nontransferable without prior notification to Metro, and provisions for furnishing the new owner or operator with a copy of the existing wastewater discharge permit;

3. Effluent limits, including best management practices, based on applicable pretreatment standards, local limits, state or local law;

4. Self monitoring, sampling, reporting, notification, and record-keeping requirements. These requirements shall include an identification of pollutants (or best management practice) to be monitored, sampling location, sampling frequency, and sample type based on federal, state, and local law;

5. A statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements, and any applicable compliance schedule. Such schedule may not extend the time for compliance beyond that required by applicable federal, state, or local law.

6. Requirements to control Slug Discharge, if determined by the director to be necessary. (Ord. BL2010-678 § 2, 2010)

15.60.255 Wastewater discharge permits: General permits.

A. At the discretion of the director, general permits may be used to control SIU discharges to the POTW if the following conditions are met. All facilities to be covered by a general permit must:

1. Involve the same or substantially similar types of operations;

2. Discharge the same types of wastes;

3. Require the same effluent limitations;

4. Require the same or similar monitoring; and

5. In the opinion of the director are more appropriately controlled under a general permit than under individual wastewater discharge permits.

a. To be covered by the general permit, the SIU must file a written request for coverage that identifies its contact information, production processes, the types of wastes generated, the location for monitoring all wastes covered by the general permit, and any other information the POTW deems appropriate.

b. The director will retain a copy of the general permit, documentation to support the POTW's determination that a specific SIU meets the criteria in Section 15.60.255 and applicable State regulations, and a copy of the user's written request for coverage for three (3) years after the expiration of the general permit.

c. General permits will contain the same required information as listed in Section 15.60.252.

Metro may not control an SIU through a general permit where the facility is subject to production-based categorical pretreatment standards or categorical pretreatment standards expressed as mass of pollutant discharged per day or for IUs whose limits are based on the combined wastestream formula or net/gross calculations as per 40 CFR 403. (Ord. BL2010-678 § 2, 2010)

15.60.258 Application signatories and certifications.

A. All wastewater discharge permit applications, user reports and certification statements must be signed by an authorized representative of the user and contain the following certification statement:

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

B. Annual certification for non-significant categorical industrial users—A facility determined to be a non-significant categorical industrial user by the director must annually submit the following certification statement signed by an authorized representative of the user.

Based on my inquiry of the person or persons directly responsible for managing compliance with the Categorical Pretreatment Standards under 40 CFR _____, I certify that, to the best of my knowledge and belief that during the period from _____, _____ to _____, _____ [months, days, year]:

(a) The facility described as _____ [facility name] met the definition of a Non-Significant Categorical industrial user.

(b) The facility complied with all applicable pretreatment standards and requirements during this reporting period; and

(c) the facility never discharged more than 100 gallons of total categorical wastewater on any given day during this reporting period.

(d) This compliance certification is based on the following information.

C. If the designation of an authorized representative is no longer accurate because a different individual or position has responsibility for the overall operation of the facility or overall responsibility for environmental matters for the company, a new written authorization satisfying the requirements of this Section must be submitted to Metro prior to or together with any reports to be signed by an authorized representative. (Ord. BL2010-678 § 2, 2010)

15.60.260 Unresolved disputes—Hearing.

A. In the event the director cannot issue a wastewater discharge permit pursuant to Section 15.60.250, the director shall submit to the authority his proposed permit conditions and the applicant's written objections thereto at the next regularly scheduled meeting of the authority.

B. The authority shall schedule a hearing within ninety days following the meeting referred to in subsection A. unless such time be extended for just cause shown to resolve any disputed matters relevant to such permit.

C. The director shall notify the applicant of the date, time, place and purpose of the hearing scheduled by the authority. The applicant shall have the right to participate in such hearing and present any relevant evidence to the authority concerning proposed special permit conditions or other matters being considered by the authority.

D. Following such hearing or such additional hearings as shall be deemed necessary and advisable by the authority, the authority shall establish such special permit conditions as it deems advisable to ensure the applicant's compliance with this title or other applicable law or regulation and direct the director to issue a wastewater discharge permit to the applicant accordingly. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (g))

15.60.270 Compliance schedule and reports—Requirements.

SIU Compliance Monitoring Reports: All significant industrial users must, at a frequency determined by Metro submit no less than twice per year, on dates specified, reports indicating the nature, concentration of pollutants in the discharge which are limited by pretreatment standards and the measured or estimated average and maximum daily flows for the reporting period. In cases where the pretreatment standard requires compliance with a best management practice (BMP) or pollution prevention alternative, the user must submit documentation required by Metro or the pretreatment standard necessary to determine the compliance status of the user. All periodic compliance reports must be signed and certified in accordance with Section 15.60.258.

The following conditions shall apply to the schedule required by Section 15.60.220, 15.60.240 or 15.60.260 of this section:

A. The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment requirements for the industrial user to meet the applicable pretreatment standards and pretreatment requirements (e.g., hiring an engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction, etc.).

B. No increment referred to in subsection A. shall exceed nine months.

C. Not later than fourteen days following each date in the schedule and the final date for compliance, the industrial user shall submit a progress report to the control authority and the director, including, as a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for the delay, and steps being taken by the industrial user to return the construction to the schedule established. In no event shall more than nine months elapse between such progress reports to the control authority and the director.

D. Within ninety days, or the date for final compliance given in the industrial user's permit, any industrial user subject to pretreatment standards and requirements shall submit to the control authority and the director a report indicating the nature and concentration of all pollutants in the discharge from the regulated process which are limited by pretreatment standards and requirements and the average and maximum daily flow for these process units in the industrial user which are limited by such pretreatment standards or requirements. The report

shall state whether the applicable pretreatment standards or requirements are being met on a consistent basis and, if not, what additional operation and maintenance procedure or pretreatment is necessary to bring the industrial user into compliance with the applicable pretreatment standards or requirements. This statement shall be signed by an authorized representative of the industrial user, as defined in Section 15.04.060, and certified to by a qualified professional.

E. Any industrial user subject to a pretreatment standard, after the compliance date of such pretreatment standard, or, in the case of a new source, after commencement of the discharge into the POTW, or subject to a final compliance date in his permit, shall submit to the control authority and the director during the months of June and December, unless required more frequently in the pretreatment standard or by the control authority and the director, a report indicating the nature and concentration of pollutants in the effluent which are limited by such pretreatment standards. In addition, this report shall include a record of all daily flows which during the reporting period exceeded the average daily flow reported in Section 15.60.220 (B)(4). At the discretion of the control authority or the director, as applicable, and in consideration of such factors as local high or low flow rates, holidays, budget cycles, etc., the control authority or the director, as applicable, may agree to alter the months during which the above reports are to be submitted.

F. The control authority or the director, as applicable, may impose mass limitations on industrial users which are using dilution to meet applicable pretreatment standards or requirements or in other cases where the imposition of mass limitations are appropriate. In such cases, the report required by subsection (E) above shall indicate the mass of pollutants regulated by pretreatment standards in the effluent of the industrial user.

G. The industrial user shall notify the POTW immediately by telephone of any slug loading (within one hour), as defined by Sections 15.60.020 through 15.60.170 of this chapter, by the industrial user.

H. The reports required in this section shall contain the results of sampling and analysis of the discharge, including the flow and the nature and concentration, or production and mass limits where requested by the control authority or the director, as applicable, of pollutants contained therein which are limited by the applicable pretreatment standards. The frequency of monitoring shall be prescribed in the applicable pretreatment standard. All analyses shall be performed in accordance with procedures established by the Environmental Protection Agency under the provisions of Section 304(h) of the Act (33 U.S.C. 1314(h)) and contained in 40 CFR part 136 and amendments thereto or with any other test procedures approved by the Environmental Protection Agency or the director. Sampling shall be performed in accordance with the techniques approved by the Environmental Protection Agency, or the director, and only by persons or companies approved by the director.

I. Any industrial user required by this section to submit a similar report to the control authority under the provisions of 40 CFR Section 403.12 may submit to the director a copy of said report in lieu of a separate report to the director provided that all information required by this title is included in the report to the control authority. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (h))

15.60.275 Notification requirements.

A. The permittee shall notify the environmental compliance section on any of the following changes to the system no later than 180 days prior to change of discharge;

1. New introduction into the POTW of pollutants from any source which would be a new source, if such source were discharging pollutants.

2. New introduction of pollutants into such works from a source which would be subject to the Sewer Use Ordinance if it were discharging such pollutants

3. A substantial change in the volume or character of pollutants being discharged into such works at the time the permit is issued.

B. This notice will include information on the quality and quantity of the wastewater introduced by the new source into the publicly owned treatment works, and on any anticipated impact on the effluent discharged from such works. (Ord. BL2010-678 § 2, 2010)

15.60.280 Records of monitoring activities required—Contents.

Any industrial user subject to the reporting requirements established in this article shall maintain records of all information resulting from any monitoring activities required by this article. Such records shall include for all samples:

A. The date, exact place, method and time of sampling and the names of the persons taking the samples;

B. The dates analyses were performed;

C. Who performed the analyses;

D. The analytical techniques/methods used; and

E. The results of such analyses. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (i))

15.60.285 Monitoring procedures.

All wastewater samples must be representative of the user's discharge. Wastewater monitoring and flow mea-

surement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to keep its monitoring facility in good working order shall not be grounds for the user to claim that sample results are unrepresentative of its discharge. If a user subject to the reporting requirement in this section monitors any regulated pollutant at the appropriate sampling location more frequently than required by Metro, using the procedures prescribed in Section 15.60.285, the results of this monitoring shall be included in the report submitted to Metro. Where the categorical pretreatment standard, local limit, or permit requires compliance with a BMP or pollution prevention alternative, the user shall submit documentation as required by Metro or the applicable standards to determine compliance with the standard.

A. Sample collection and analyses. Samples and measurements taken in compliance with the monitoring requirements of this permit shall be representative of the volume and nature of the monitored discharge during a normal production day and shall be taken as follows:

1. Be performed on composite and grab samples representative of the total wastewater flow discharged to the Metropolitan Government Sewerage System with the maximum time interval between samples no longer than sixty (60) minutes.

2. Be conducted in accordance with the U.S. Environmental Protection Agency protocol. The results must be reported to the lowest detectable limit of the methodology. Samples are to be analyzed by a laboratory, certified by Metro Water Services for the required parameters.

3. Provide the flow rate for which the results are indicative to the nearest 100 gallons per day.

4. Except as indicated in subsection 15.60.285 A.5. or if designated different in the user's permit, the user must collect wastewater samples using 24-hour flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by Metro. Where time-proportional composite sampling or grab sampling is authorized by Metro, the samples must be representative of the discharge. Using protocols (including appropriate preservation) specified in 40 CFR Part 136 and appropriate EPA guidance, multiple grab samples collected during a 24-hour period may be composited prior to the analysis as follows: for cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by Metro as appropriate. In addition, grab samples may be required to show compliance with instantaneous limits.

5. Samples for oil and grease, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques.

6. For sampling required in support of baseline monitoring and 90-day compliance reports [40 CFR 403.12(g)(4) and Tennessee Rule 1200-4-14-.12(2) and (4)], a minimum of four (4) grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, Metro may authorize a lower minimum. For the reports required by 15.60.270 [40 CFR 403.12(g)(4) and Tennessee Rule 1200-4-14-.12(5) and (8)], the industrial user is required to collect the number of grab samples necessary to assess and assure compliance with applicable pretreatment standards and requirements.

B. Sample location. All approved sampling shall be collected from the sample collection point as designated in the industrial/municipal user's permit as issued by Metro Water Services.

C. Test procedures.

1. Test procedures for the analysis of pollutants shall conform to regulations published pursuant to Section 304 (h) of the Clean Water Act of 1977, under which such procedures may be required.

2. Unless otherwise noted in the permit, all pollutant analyses, including sampling techniques, to be submitted as part of a wastewater discharge permit application or report shall be performed in accordance with the techniques prescribed in 40 CFR Part 136 and amendments thereto, unless otherwise specified in an applicable categorical pretreatment standard. If 40 CFR Part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the EPA determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analyses shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by Metro or other parties approved by EPA. (Ord. BL2010-678 § 2, 2010)

15.60.288 Repeat sampling and reporting/notice of violation.

If sampling performed by a user indicates a violation, the user must notify Metro within twenty-four (24) hours of becoming aware of the violation. The user shall also repeat the sampling and analysis and submit the results of

the repeat analysis to Metro within thirty (30) days after becoming aware of the violation. Resampling by the industrial user is not required if Metro performs sampling at the user's facility at least once a month, or if Metro performs sampling at the user's facility between the time when the initial sampling was conducted and the time when the user or Metro receives the results of this sampling, or if Metro has performed the sampling and analysis in lieu of the industrial user. If Metro performed the sampling and analysis in lieu of the industrial user, Metro will perform the repeat sampling and analysis unless it notifies the user of the violation and requires the user to perform the repeat sampling and analysis. (Ord. BL2010-678 § 2, 2010)

15.60.290 Records of monitoring activities—Retention for four years—Subject to inspection.

Users subject to the reporting requirements of this ordinance shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this ordinance, any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements, and documentation associated with Best Management Practices. Records shall include the date, exact place, method, and time of sampling, and the name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. Any user subject to the reporting requirement established in this article shall be required to retain for a minimum of four years any records of monitoring activities and results (whether or not such monitoring activities are required by this article) and shall make such records available for inspection and copying by the director, the Director of the Tennessee Department of Environment and Conservation, Tennessee Department of Public Health, or the Environmental Protection Agency. This period of retention shall be extended during the course of any unresolved litigation regarding the industrial user or when requested by the director, the Director of the Tennessee Department of Environment and Conservation, Tennessee Department of Public Health, or the Environmental Protection Agency. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (j))

15.60.300 Term—Renewal—Modifications.

A. Wastewater discharge permits shall be issued for a period of three years. Original permits may be issued for a period between two and three years for the administrative convenience of the director so as to stagger the renewal dates of the permits. Permits issued to users granted an exception pursuant to Section 15.60.180, shall be issued for a period of one year.

B. Notwithstanding the foregoing, users becoming subject to a National Pretreatment Standard shall apply for new permits on the effective date of such National Pretreatment Standards. The director shall notify in writing any user whom he has cause to believe is subject to a National Pretreatment Standard of the promulgation of such federal regulations, but any failure of the director in this regard shall not relieve the user of the duty of complying with such National Pretreatment Standards.

C. A user must apply in writing for a renewal permit within the period of time not more than ninety days and not less than thirty days prior to expiration of the current permit.

D. Limitations or conditions of a permit are subject to modification or change due to, but not limited to, changes in applicable water quality standards, changes in Metro's NPDES permit, changes in Sections 15.60.070 and 15.60.090, the need to incorporate any new or revised federal, state, or local pretreatment requirement, changes in the user's operations and processes, violation of any terms or conditions of the user's permit, changes in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge, to correct typographical or other errors in the user's permit, misrepresentations or failure to fully disclose relevant facts in the wastewater discharge permit application or in any required reporting, changes in other applicable law or regulation, or for other just cause; and users shall be notified of any proposed changes in their permit by the director at least thirty days prior to the effective date of the change. Any change or new condition in a permit shall include a provision for a reasonable time schedule for compliance. The user may appeal the decision of the director in regard to any changed permit conditions as otherwise provided in this chapter. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (k))

15.60.310 Transfer—Approval required.

Wastewater discharge permits are issued to a specific user for a specific operation. A wastewater discharge permit shall not be reassigned or transferred or sold to a new owner, new user or for different premises unless approved by the director. (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (l))

15.60.320 Revocation.

Any permit issued under the provisions of this article is subject to be modified, suspended or revoked in whole or in part during its term for cause, including but not limited to the following:

A. Violation of any terms or conditions of the wastewater discharge permit or other applicable law or regulation;

B. Obtaining of a permit by misrepresentation or failure to disclose fully all relevant facts; or

C. A change in any condition that requires either a temporary or permanent reduction or elimination of the permitted discharge.

D. Falsifying self-monitoring reports and certification statements;

E. Tampering with monitoring equipment;

F. Refusing to allow Metro timely access to the facility premises and records;

G. Failure to meet effluent limitations;

H. Failure to pay fines;

I. Failure to pay sewer charges;

J. Failure to meet compliance schedules;

K. Failure to complete a wastewater survey or the wastewater discharge permit application;

L. Failure to provide advance notice of the transfer of business ownership of a permitted facility (Ord. BL2010-678 § 2, 2010; Prior code § 40-1-187, Part I (m))

15.60.325 Regulation of waste from other jurisdictions.

A. If another municipality, or user located within another municipality, contributes wastewater to the POTW, Metro shall enter into an intermunicipal agreement with the contributing municipality.

B. Prior to entering into an agreement required by paragraph A, above, Metro shall request the following information from the contributing municipality:

1. A description of the quality and volume of wastewater discharged to the POTW by the contributing municipality;

2. An inventory of all users located within the contributing municipality that are discharging to the POTW; and

3. Such other information as Metro may deem necessary.

C. An intermunicipal agreement, as required by paragraph A., above, shall contain the following conditions:

1. A requirement for the contributing municipality to adopt a sewer use ordinance which is at least as stringent as this ordinance and Local Limits, including required Baseline Monitoring Reports (BMRs) which are at least as stringent as those set out in this ordinance. The requirement shall specify that such ordinance and limits must be revised as necessary to reflect changes made to Metro's ordinance or local limits;

2. A requirement for the contributing municipality to submit a revised user inventory on at least an annual basis;

3. A provision specifying which pretreatment implementation activities, including individual wastewater discharge permit, or general permit, issuance, inspection and sampling, and enforcement, will be conducted by the contributing municipality; which of these activities will be conducted by Metro and which of these activities will be conducted jointly by the contributing municipality and Metro;

4. A requirement for the contributing municipality to provide Metro with access to all information that the contributing municipality obtains as part of its pretreatment activities;

5. Limits on the nature, quality, and volume of the contributing municipality's wastewater at the point where it discharges to the POTW;

6. Requirements for monitoring the contributing municipality's discharge;

7. A provision ensuring Metro access to the facilities of users located within the contributing municipality's jurisdictional boundaries for the purpose of inspection, sampling, and any other duties deemed necessary by Metro; and

8. A provision specifying remedies available for breach of the terms of the intermunicipal agreement. (Ord. BL2010-678 § 2, 2010)

Article III. Administration and Enforcement

15.60.330 Director—Authority and responsibilities.

A. Responsibilities and assignment. The director and his staff shall be responsible for the administration of all sections of this title. Administratively, he shall be assigned to the department of water and sewerage services.

B. Authority. The director shall have the authority to enforce all sections of this title. He shall be responsible and have the authority to operate the various treatment works. He shall be responsible for the preparation of operating budgets and recommendations concerning activities within his responsibility and authority.

C. Records. The director shall keep in his office a complete record of all applications required under this title, including a record of all wastewater discharge permits. He shall also maintain the minutes and other records of the wastewater hearing authority.

D. Wastewater hearing authority. The director shall attend all meetings of the wastewater hearing authority, or whenever it is necessary for him to be absent he shall send a designated representative and shall make such reports to and assist such authority in the administration of this title.

E. The director shall notify industrial users identified in 40 CFR Section 403.8(f)(2) and (i) of any applicable pretreatment standards or other applicable requirements promulgated by the Environmental Protection Agency under the provisions of Section 204(b) of the Act (33 U.S.C. 1284), Section 405 of the Act (33 U.S.C. 1345), or under the provisions of Section 3001 (42 U.S.C. 6921), 3004 (42 U.S.C. 6924) or 4004 (42 U.S.C. 6944) of the Solid Waste Disposal Act. Failure of the director to so notify industrial users shall not relieve such users from the responsibility of complying with such requirements.

F. The director shall comply with all applicable public participation requirements of Section 101(e) of the Act (33 U.S.C. 125 1(e)) and 40 CFR Part 105 in the enforcement of National Pretreatment Standards. The director shall at least annually provide public notification, in the largest daily newspaper published in Nashville of industrial users during the previous twelve months which at least once were not in compliance with the applicable pretreatment standards or other pretreatment requirements. The notification shall summarize enforcement actions taken by the control authorities during the same twelve months. An industrial user shall be deemed to be in compliance with applicable pretreatment standards or other pretreatment requirements if he has completed applicable increments of progress under the provisions of any compliance schedule in the user's wastewater discharge permit or if the user has been granted an exception under the provisions of Section 15.60.180. (Ord. BL2010-678 § 2, 2010; Prior code § 40-189)

15.60.340 Monitoring and inspections.

A. Whenever required to carry out the objective of this title, including but not limited to developing or assisting in the development of any effluent limitation, or other limitation, prohibition or effluent standard, pretreatment standard, standard of performance, or permit condition under this title; determining whether any person is in violation of any such effluent limitation, or other limitation, prohibition or effluent standard, pretreatment standard, standard of performance, or permit condition; or any requirement established under this chapter:

1. The director shall require any industrial user to:

a. Establish and maintain such records;

b. Make such reports;

c. Install, use and maintain such monitoring equipment or methods including, where appropriate, biological monitoring methods;

d. Sample such effluents, in accordance with such methods, at such locations, at such intervals and in such manner as the director shall prescribe;

e. Provide such other information as he may reasonably require; and

2. The director or his authorized representative, upon presentation of his credentials, shall have a right of entry to, upon or through any premises in which an effluent source is located or in which any records required to be maintained under subsection 1. of this section are located. Metro shall have the right to enter the premises of any user to determine whether the user is complying with all requirements of this ordinance and any individual wastewater discharge permit or general permit or order issued hereunder. Users shall allow Metro ready access to all parts of the premises for the purposes of inspection, sampling, records examination and copying, and the performance of any additional duties.

a. Where a user has security measures in force which require proper identification and clearance before entry into its premises, the user shall make necessary arrangements with its security guards so that, upon presentation of suitable identification, Metro shall be permitted to enter without delay for the purposes of performing specific responsibilities.

b. Metro shall have the right to set up on the user's property, or require installation of, such devices as are necessary to conduct sampling and/or metering of the user's operations.

c. Metro may require the user to install monitoring equipment as necessary. The facility's sampling and monitoring equipment shall be maintained at all times in a safe and proper operating condition by the user at its own expense. All devices used to measure wastewater flow and quality shall be calibrated to ensure their accuracy.

d. Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the user at the written or verbal request of Metro and shall not be replaced. The costs of clearing such access shall be borne by the user.

e. Unreasonable delays in allowing Metro access to the user's premises shall be a violation of this ordinance; and

f. May at reasonable times have access to and copy any records, inspect any monitoring equipment or method required under subsection 1. and sample any effluents which the owner or operator of such source is required to sample under subsection 1.

B. Any records, reports or information obtained under this section:

1. Shall, in the case of effluent data, be related to any applicable effluent limitations, toxic, pretreatment or permit condition; and

2. Shall be available to the public; except that upon a showing satisfactory to the director by any person that records, reports or information, or particular part thereof (other than effluent data), to which the director has access under this section, if made public would divulge methods or processes entitled to protection as trade secrets of such person, the director shall consider such record, report or information, or particular portion thereof, confidential in accordance with the purposes of this title, except that such record, report or information may be disclosed to officers, employees or authorized representatives of the State of Tennessee or the United States concerned with carrying out the provisions of the Clean Water Act or when relevant in any proceeding under this title or other applicable laws.

C. Specific requirements under the provisions of subsection A.1. of this section shall be established by the director, or the authority as applicable, for each industrial user; and such requirements shall be included as a condition of the user's wastewater discharge permit. The nature or degree of any requirement under this provision shall depend upon the nature of the user's discharge, the impact of the discharge on the POTW, the volume of water discharged, and the technical feasibility of and economic reasonableness of any such requirement imposed. The user shall be required to design any necessary facility and to submit detailed design plans and operating procedures to the director for review in accordance with accepted engineering practices. The director shall review such plans within forty-five days and shall recommend to the user any change he deems appropriate.

D. Upon approval of plans as specified in subsection C., the user shall secure building, electrical, plumbing or other permits as may be required by this code and proceed to construct any necessary facility and establish such operating procedures as are required within the time provided in the user's wastewater discharge permit.

E. In the event any user denies the director or his authorized representative of the right of entry to or upon the user's premises for purposes of inspection, sampling effluents, inspecting and copying records, or performing such other duties as shall be imposed upon him by this section, the director shall seek a warrant or use such other legal procedures as shall be advisable and reasonably necessary to discharge his duties under this section.

(Ord. BL2010-678 § 2, 2010; prior code § 40-188, Part I (a)—(e))

15.60.350 Wastewater hearing authority.

A. There is established an authority of seven members to be known as the wastewater hearing authority.

B. The hearing authority shall be composed of the following members, to be appointed by the mayor and confirmed by the metropolitan council for a term of two years: one representative of major industry, one representative of a tributary utility district or city inside or outside Davidson County, one private citizen, two representatives of the technical/science or financial field, one representative of the manufacturing/industrial field, and one representative of the food service field.

C. Provisions.

1. Members may be removed from the hearing authority by the mayor, with councilmanic approval, for continued absence from meetings, or other just cause.

2. Members shall comply with Chapter 11, Sections 11.101 through 11.108, inclusive, of the Charter of the metropolitan government.

D. Powers and duties. In addition to any other duty or responsibility otherwise conferred upon the hearing authority by this title, the hearing authority shall have the duty and power as follows:

1. To recommend to the metropolitan council that it amend or modify the provisions of this title;

2. To establish, modify or amend procedural rules governing hearings, orders, issuance of permits, and all other matters not specifically requiring a hearing. Any rules so adopted shall be filed with the metropolitan clerk;

3. To grant exceptions pursuant to the provisions of Section 15.60.180, and to determine such issues of law and fact as are necessary to perform this duty;

4. To hold hearings upon appeals from orders or actions of the director as may be provided under any provision of this title;

5. To hold hearings relating to the suspension, revocation or modification of a wastewater discharge permit as it is provided in this chapter and issue appropriate orders relating thereto;

6. To hold such other hearings relating to any aspect or matter in the administration of this title and to make such determinations and issue such orders as may be necessary to effectuate the purposes of this title;

7. To request assistance from any officer, agent or employee of the metropolitan government to obtain such information or other assistance as the hearing authority might need;

8. The hearing authority, acting through its chairman, shall have the power to issue subpoenas requiring attendance and testimony of witnesses and the production of documentary evidence relevant to any matter properly heard by the hearing authority;

9. The chairman, vice-chairman or chairman pro tem shall be authorized to administer oaths to those persons giving testimony before the hearing authority;

10. The hearing authority shall hold quarterly meetings and such special meetings as the board may find necessary;

11. A majority of the members to which the hearing authority is entitled shall constitute a quorum, but a lesser number may adjourn the meeting from day to day;

12. In addition to any other power granted to it by this title, the hearing authority is granted the authority to assess a civil penalty in an amount not to exceed the sum of ten thousand dollars per day for each day of violation against any person in violation of this chapter.

a. The assessment of a civil penalty shall be made by the director against any person determined to be in violation of this chapter. Notice of such assessment shall be provided by certified mail, return receipt requested,

b. Any person against whom an assessment is made by the director may appeal to the hearing authority by filing a request with the director for review by the hearing authority. Request for review by the hearing authority must be made in writing and filed within thirty days of the receipt of the assessment and shall state with particularity the grounds for the appeal. Any such appeal shall stay the effect of the assessment,

c. Failure to appeal the assessment within thirty days shall be a waiver of the right to appeal and be deemed as consent to the assessment which shall become final upon approval by the hearing authority,

d. The assessment of a civil penalty shall be upheld unless the preponderance of the evidence shows that the assessment was unlawfully levied or unreasonably severe,

e. No assessment of a civil penalty, whether brought to the hearing authority by appeal or for confirmation by the director, shall be final until such assessment is approved by the hearing authority at any regular meeting or duly called special meeting. The hearing authority may alter or modify the terms of any civil penalty but any increase in the amount of civil penalty or which otherwise imposes a greater burden upon the person against whom the penalty is assessed shall not become final until such person receives written notice thereof and is provided the right to petition the hearing authority for modification of such assessment in the same manner as an appeal from assessment of a civil penalty by the director,

f. The director may enter into consent decrees with any person in violation of this chapter and, after approval by the hearing authority, the same shall have the effect and be enforceable in the same manner as a civil penalty,

g. In assessing a civil penalty, the director and the hearing authority may consider all factors listed in Tennessee Code Annotated Section 69-3-125 and may include any expenses and actual damages incurred by the metropolitan government in investigating, removing, correcting or cleaning up the violation. (Amdt. 1 to Ord. BL2025-811, 2025; Ord. BL2025-811 §§ 24, 26, 2025; Ord. BL2010-678 § 2, 2010; Ord. 97-729 § 3 (part), 1997).

15.60.360 Adjudicatory hearing procedures.

A. The hearing authority shall schedule an adjudicatory hearing to resolve disputed questions of fact and law whenever provided by any provision of this title.

B. At any such hearing, all testimony presented shall be under oath or upon solemn affirmation in lieu of oath. The hearing authority shall make a record of such hearing, but the same need not be a verbatim record. Any party coming before the authority shall have the right to have such hearing recorded, but in such event the record need not be transcribed unless any party seeks judicial review of the order or action of the hearing authority by common law writ of certiorari; and in such event the party seeking such judicial review shall pay for the transcription and provide the hearing authority with the original of the transcript so that it may be certified to the court.

C. The chairman may issue subpoenas requiring attendance and testimony of witnesses or the production of evidence, or both. A request for issuance of a subpoena shall be made by lodging with the chairman at least ten days prior to the scheduled hearing date a written request for a subpoena setting forth the name and address of the party to be subpoenaed, and identifying any evidence to be produced. Upon endorsement of a subpoena by the chairman, the same shall be delivered to the sheriff's office for service by any authorized officer of the metropolitan government. If the witness does not reside in the metropolitan area, the chairman shall issue a written request that the witness attend the hearing.

D. Upon agreement of all parties, the testimony of any person may be taken by deposition or written interrogatories. Unless otherwise agreed, the deposition shall be taken in a manner consistent with Rules 26 through 33 of the Tennessee Rules of Civil Procedure, with the chairman to rule on such matters as would require a ruling by the court under such rules.

E. The party at such hearing bearing the affirmative burden of proof shall first call his witnesses, to be followed by witnesses called by other parties, to be followed by any witnesses which the authority may desire to call. Rebuttal witnesses shall be called in the same order. The chairman shall rule on any evidentiary questions arising during such hearing and shall make such other rulings as shall be necessary or advisable to facilitate an orderly hearing subject to approval of the hearing authority. The hearing authority, the director, or

his representative, and all parties shall have the right to examine any witness. When sitting without an administrative law judge, the hearing authority shall not be bound by or limited to rules of evidence applicable to legal proceedings or the Uniform Administrative Procedures Act.

F. Any person aggrieved by any order or determination of the director may appeal such order or determination for review by the hearing authority. A written notice of appeal shall be filed with the director, and the notice shall set forth with particularity the action or inaction of the director complained of and the relief being sought by the person filing the appeal. A special meeting of the hearing authority may be called by the chairman upon the filing of such appeal, and the hearing authority may in its discretion suspend the operation of the order or determination of the director appealed from until such time as the authority has acted upon the appeal. However, actions and determinations of the director under the provisions of Sections 15.60.410 through 15.60.440 shall not be subject to review under this section.

G. Within ten days of filing of an appeal, any party may request that an administrative law judge be appointed to conduct the hearing together with the hearing authority pursuant to Tennessee Code Annotated Section 7-7-105. Any hearing conducted by an administrative law judge shall be heard pursuant to the contested case provisions of the Uniform Administrative Procedures Act, Tennessee Code Annotated Section 4-5-301, et seq.

H. The vice-chairman or the chairman pro tem shall possess all the authority delegated to the chairman by this section when acting in his absence or in his stead.

I. Any person aggrieved by any final order of the hearing authority hereunder may seek judicial review by common law writ of certiorari. (Ord. BL2010-678 § 2, 2010; Ord. 97-729 § 3 (part), 1997)

15.60.370 Violation—Public nuisance.

Discharge of wastewater in any manner in violation of this chapter or of any condition of a wastewater discharge permit is declared a public nuisance and shall be corrected or abated as provided in this chapter. (Ord. BL2010-678 § 2, 2010; Ord. 97-729 § 3 (part), 1997)

15.60.380 Violation—Notice.

Whenever the director determines or has reasonable cause to believe that a discharge of wastewater has occurred in violation of the provisions of this title, the user's wastewater discharge permit, or any other applicable law or regulation, he shall notify the user of such violation. Failure of the director to provide notice to the user shall not in any way relieve the user from any consequences of a wrongful or illegal discharge. (Ord. BL2010-678 § 2, 2010; Ord. 97-729 § 3 (part), 1997)

15.60.385 Significant noncompliance.

The director shall publish annually, in a newspaper of general circulation that provides meaningful public notice within the jurisdictions served by Metro Water Services, a list of the users which, at any time during the previous twelve (12) months, were in significant noncompliance with applicable pretreatment standards and requirements. The term significant noncompliance shall be applicable to all significant industrial users (or any other industrial user that violates paragraphs C., D. or H. of this section) and shall mean:

A. Chronic violations of wastewater discharge limits, defined here as those in which sixty-six percent (66%) or more of all the measurements taken for the same pollutant parameter taken during a six-month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits as defined in Metro Code of Laws Title §15.60.070;

B. Technical review criteria (TRC) violations, defined here as those in which thirty-three percent (33%) or more of wastewater measurements taken for each pollutant parameter during a six-month period equals or exceeds the product of the numeric pretreatment standard or requirement including instantaneous limits, as defined by Metro Code of Laws Title § 15.60.070 multiplied by the applicable criteria (1.4 for BOD, TSS, fats, oils and grease, and 1.2 for all other pollutants except pH);

C. Any other violation of a pretreatment standard or requirement as defined by Metro Code of Laws Title § 15.60.070 (Daily Maximum, long-term average, Instantaneous Limit, or narrative standard) that the director determines has caused, alone or in combination with other discharges. Interference or pass through, including endangering the health of POTW personnel or the general public;

D. Any discharge of a pollutant that has caused imminent endangerment to the public or to the environment, or has resulted in the director's exercise of its emergency authority to halt or prevent such a discharge;

E. Failure to meet, within ninety (90) days of the scheduled date, a compliance schedule milestone contained in an individual wastewater discharge permit, or a general permit, or enforcement order for starting construction, completing construction, or attaining final compliance;

F. Failure to provide within thirty (30) days after the due date, any required reports, including baseline monitoring reports, reports on compliance with categori-

cal pretreatment standard deadlines, periodic self-monitoring reports, and reports on compliance with compliance schedules;

G. Failure to accurately report noncompliance; or any other violation(s), which may include a violation of Best Management Practices, which the director determines will adversely affect the operation or implementation of the local pretreatment program. (Ord. BL2010-678 § 2, 2010)

15.60.390 Enforcement response manual.

The director shall promulgate an enforcement response manual that establishes the procedures to be followed by the department as it enforces the provisions of this chapter. Upon approval by the hearing authority, the enforcement response manual shall be filed with the metropolitan clerk. (Ord. BL2010-678 § 2, 2010; Ord. 97-729 § 3 (part), 1997)

15.60.400 Show-cause hearing before Metro wastewater hearing authority.

The director may issue a show-cause notice to any permit holder directing that he appear before the hearing authority at a specified date and time to show cause why the permit holder's wastewater discharge permit should not be modified, suspended or revoked for causing or suffering violation of this title, or other applicable law or regulation, or conditions in the wastewater discharge permit of the user. If the director seeks to modify the wastewater discharge permit to establish wastewater strength limitations or other control techniques to prevent future violations, he shall notify the permit holder of the general nature of the recommendations he shall make to the hearing authority. If the director seeks to suspend or revoke the wastewater discharge permit, he shall notify the permit holder of the nature of the violation for which revocation or suspension is sought with sufficient specificity as to the character of the violation and the dates at which such violation occurred to enable the permit holder to prepare his defense. Such notice shall be mailed to the permit holder by certified mail, return receipt requested, or shall be personally delivered to the permit holder at least twenty days prior to the scheduled hearing date. (Ord. BL2010-678 § 2, 2010; Ord. 97-729 § 3 (part), 1997)

15.60.410 Injunctive relief.

The director may in the name of the metropolitan government file in any court of competent jurisdiction a suit seeking the issuance of an injunction, damages or other appropriate relief to enforce the provisions of this title or other applicable law or regulation. Suit may be brought to recover any and all damages suffered by the metropolitan government as a result of any action or inaction of any person who causes or suffers damage to occur to the POTW or for any other expense, loss or damage of any kind or nature suffered by the metropolitan government. (Ord. BL2010-678 § 2, 2010; Ord. 97-729 § 3 (part), 1997)

15.60.420 Assessment of damage to user.

When a discharge of waste causes an obstruction, damage or any other impairment to the facilities, or any expense of whatever character or nature to the metropolitan government, the director shall assess the expenses incurred by the metropolitan government to clear the obstruction, repair damage to the facility, and any other expenses or damages incurred by the metropolitan government. The director shall file a claim with the user or any other person causing or suffering such damages to occur, seeking reimbursement for any and all expenses or damages suffered by the metropolitan government. If the claim is ignored or denied, the director shall notify the metropolitan attorney to take such measures as shall be appropriate to recover for any expenses or other damages suffered by the metropolitan government. (Ord. BL2010-678 § 2, 2010; Ord. 97-729 § 3 (part), 1997)

15.60.430 Applicability of state and federal regulations.

In addition to other remedies for enforcement provided in this article, the director may petition the state or the Environmental Protection Agency, as appropriate, to exercise such methods or remedies as shall be available to such government entities to seek criminal or civil penalties, injunctive relief, or such other remedies as may be provided by applicable federal or state laws to ensure compliance by users of applicable pretreatment standards, to prevent the introduction of toxic pollutants or other regulated pollutants into the POTW, or to prevent such other water pollution as may be regulated by state or federal law. (Ord. BL2010-678 § 2, 2010; Ord. 97-729 § 3 (part), 1997)

15.60.440 Emergency termination of service.

In the event of an actual or threatened discharge to the POTW of any pollutant which in the opinion of the director presents or may present an imminent and substantial endangerment to the health or welfare of persons or the environment, or cause interference with the POTW, the director, or in his absence the person then in charge of the treatment works, shall immediately notify the Emergency Response Office of the nature of the emergency. The director shall also attempt to notify the industrial user or other person causing the emergency and request their assistance in abating same. Following

consultation with the aforementioned officials of the metropolitan government, or in their absence such elected officials of the metropolitan government as may be available, the director shall temporarily terminate the service of such user or users as are necessary to abate the condition when such action appears reasonably necessary. Such service shall be restored by the director as soon as the emergency situation has been abated or corrected. (Ord. BL2010-678 § 2, 2010; Ord. 97-729 § 3 (part), 1997)

15.60.450 Punitive action—Confirmation of authority required—Exceptions.

The director shall report to the hearing authority his intent to institute any action under the provisions of Sections 15.60.410 and 15.60.430 and seek the advice of the authority in regard thereto, unless he shall determine that immediate action is advisable. (Ord. BL2010-678 § 2, 2010; Ord. 97-729 § 3 (part), 1997)

15.60.460 Violation—Penalty.

Any person who violates any provision of this chapter including but not limited to the following violations:

A. Violates an effluent standard or limitation;

B. Violates the terms or conditions of a wastewater discharge permit;

C. Fails to complete a filing or reporting requirement;

D. Fails to perform or properly report any required monitoring;

E. Violates a final order or determination of the hearing authority or the director; or

F. Fails to pay any established sewer service charge or industrial cost recovery charge;

shall be assessed a civil penalty in an amount not to exceed the sum of ten thousand dollars per day for each day of violation. (Ord. BL2010-678 § 2, 2010; Ord. 97-729 § 3 (part), 1997)

15.60.465 Right of entry.

Under 40 CFR 403.8(A)(6)(v), pretreatment shall have the right to carry out all inspections, surveillance and monitoring procedures necessary to determine, independent of information supplied by industrial users, compliance or noncompliance with applicable pretreatment standards and requirements by industrial users. Representatives of the POTW shall be authorized to enter any premises of any industrial user in which a discharge source or treatment system is located or in which records are required to be kept under Section 403.12(o) to assure compliance with pretreatment standards. Such authority shall be at least as extensive as the authority provided under Section 308 of the Act;

Pretreatment requirements which will be enforced through the remedies set forth in paragraph 40 CFR 403.8(f)(1)(vi)(A) of this section, will include but not be limited to, the duty to allow or carry out inspections, entry, or monitoring activities; any rules, regulations, or orders issued by the POTW; any requirements set forth in control mechanisms issued by the POTW; or any reporting requirements imposed by the POTW or these regulations in this part. The POTW shall have authority and procedures (after informal notice to the discharger) immediately and effectively to halt or prevent any discharge of pollutants to the POTW which reasonably appears to present an imminent endangerment to the health or welfare of persons. The POTW shall also have authority and procedures (which shall include notice to the affected industrial users and an opportunity to respond) to halt or prevent any discharge to the POTW which presents or may present an endangerment to the environment or which threatens to interfere with the operation of the POTW. (Ord. BL2010-678 § 2, 2010)

Article IV. Charges

15.60.470 Grease collection device inspection charge.

The department shall bill and collect a charge of one hundred twenty dollars from the customer for performing an annual inspection of each grease collection device maintained by a food service establishment that is a customer of the department. For purposes of this subsection, a food service establishment is any place of business that prepares, cooks, heats or reheats food for sale to retail or wholesale customers on or off the business premises. (Ord. BL2007-1457 § 13, 2007)

15.60.480 Plan and permit review—Schedule of charges.

Notwithstanding any other provision of the Metropolitan Code of Laws, the department shall develop a schedule of charges for services provided in reviewing and administering permit applications for businesses covered by this chapter. The schedule of charges shall reflect the department's actual costs incurred in providing such services. A copy of the schedule of charges shall be filed with the metropolitan clerk, furnished to each member of the metropolitan council and made available on request to any citizen of Davidson County. The department shall bill and collect in accordance with the schedule of charges, which may be amended from time to time to reflect changes in the department's actual costs of providing the services contemplated herein. (Ord. BL2007-1457 § 14, 2007)

Chapter 15.64

STORMWATER MANAGEMENT

Sections:

15.64.010 Definitions.
15.64.015 Stormwater division.
15.64.020 Director of the department of water and sewerage services—Authority.
15.64.030 Reserved.
15.64.031 Reserved.
15.64.032 Stormwater fees.
15.64.033 Reserved.
15.64.034 Reports of stormwater division.
15.64.035 Reserved.
15.64.040 Stormwater management commission—Created.
15.64.050 Stormwater management commission—Organization.
15.64.060 Stormwater management commission—Compensation.
15.64.070 Stormwater management commission—Replacement of members.
15.64.080 Stormwater management commission—Regulations—Meetings—Duties.
15.64.090 Stormwater management commission—Voting regulations.
15.64.100 Appeal and variance request procedure.
15.64.105 Public notice requirements.
15.64.110 Issuance of building and occupancy permits—Approval by director of the department of water and sewerage services.
15.64.120 Construction that may increase degree of flooding prohibited.
15.64.130 Review of building permits—Drainage control referrals—Exemptions.
15.64.131 Infill development—Applicability and requirements.
15.64.140 Property developments—Drainage and erosion control plans required when.
15.64.150 Application of Tennessee Water Quality Control Act and Federal Water Pollution Control Act.
15.64.160 Applicability of floodplain regulations.
15.64.170 Development within floodways—Restrictions.
15.64.175 Residential development along the Cumberland River.
15.64.180 Alterations of floodplains and drainage channels—Requirements.
15.64.190 Responsibility for off-site drainage improvements.
15.64.195 Reserved.
15.64.200 Floodproofing measures.
15.64.205 Non-stormwater discharges.
15.64.210 Liability limitation.
15.64.215 Stormwater plan and permit review charge.
15.64.220 Violations—Penalties.
15.64.225 [Enforcement of county-wide emergency health orders.]
15.64.230 Notification to property owners upon amendments to flood maps.

15.64.010 Definitions.

As used in this chapter, the following words and terms shall have the meanings ascribed herein:

"Base flood" means the flood having a one percent chance of being equaled or exceeded in any given year. This is the regulatory standard also referred to as the "100-year flood."

"Base flood elevation" means the computed elevation to which floodwater is anticipated to rise during the base flood. Base flood elevations (BFEs) are shown on Flood Insurance Rate Maps (FIRMs) and on the flood profiles.

"Channel" means a natural or artificial watercourse of perceptible extent, with definite bed and banks to confine and conduct continuously or periodically flowing water. Channel flow thus is that water which is flowing within the limits of the defined channel.

"Community waters" means any and all rivers, streams, creeks, branches, lakes, reservoirs, ponds, springs, wetlands, and other bodies of surface or subsurface water, natural or artificial, lying within or forming a part of the boundaries of the Metropolitan Government of Nashville and Davidson County.

"Contaminant" means any physical, chemical, biological or radiological substance or matter.

"Department" means the Metropolitan Government of Nashville and Davidson County's Department of Water and Sewerage Services.

"Director" means the Director of the Metropolitan Government of Nashville and Davidson County's Department of Water and Sewerage Services, or his designee.

"Discharge" means any substance disposed, deposited, spilled, poured, injected, seeped, dumped, leaked, or placed by any means, intentionally or unintentionally, into community waters, the waters of the state, or any area draining directly or indirectly into the municipal stormwater system of the metropolitan government.

"Drainage basin" means a part of the surface of the earth that is occupied by and provides surface water runoff into a drainage system which consists of a surface stream or a body of impounded surface water together with all tributary surface streams and bodies of impounded surface water.

"Erosion" means the disintegration or wearing away of the earth's surface by the action of wind and water.

"Flood" means water from a river, stream, watercourse, lake or other body of standing water that temporarily overflows and inundates adjacent lands and which may affect other lands and activities through increased surface water levels, and/or increased ground water level.

"Floodplain" means the relatively flat or lowland area adjoining a river, stream, watercourse, lake, or other body of standing water which has been or may be covered temporarily by flood water. For administrative purposes, the "floodplain" is defined as the 100-year floodplain, which is the area predicted to be inundated by the base flood.

"Floodproofing" means a combination of structural provisions, changes, or adjustments to properties and structures subject to flooding primarily for the reduction or elimination of flood damages to properties, water and sanitary facilities, structures, and contents of buildings in a flood hazard area.

"Flood protection elevation" means at least four feet above the base flood elevation for residential construction and at least one foot above the base flood elevation for non-residential construction.

"Floodway" means that portion of the stream channel and adjacent floodplain required for the passage or conveyance of a 100-year flood discharge. The floodway boundaries are placed to limit encroachment in the floodplain so that a 100-year flood discharge can be conveyed through the floodplain without increasing the water surface elevation by more than a foot at any point and without producing hazardous velocities or conditions. This is the area of significant depths and velocities, and due consideration should be given to effects of fill, loss of cross-sectional flow area, and resulting increased water surface elevations.

"Floodway fringe" means that portion of the floodplain lying outside the floodway. This is the area of the floodplain that may be developed or encroached upon as long as the water surface elevation of the 100-year flood is not increased.

"Green infrastructure" means an approach to wet weather management that is cost-effective, sustainable, and environmentally friendly, which incorporates management approaches and technologies that infiltrate, evapotranspire, capture and reuse stormwater to maintain or restore natural hydrologies. Green infrastructure practices include, but are not limited to open space, rain gardens, porous pavements, green roofs, infiltration planters, trees and tree boxes, swales, and curb extensions.

"Green street" means a public right-of-way that utilizes green infrastructure to manage wet weather flows and enhance water quality.

"Human occupancy" means any portion of any enclosed structure wherein humans principally live or sleep, such as mobile homes, permanent residential activities, semi-transient residential activities, health care community facilities, nursing home community facilities, orphanages, family care facilities, group care facilities, or transient habitation.

"Impervious area" means the portion of a parcel of property that is covered by any material, including without limitation roofs, streets, sidewalks and parking lots paved with asphalt, concrete, compacted sand, compacted gravel or clay, that substantially reduces or prevents the infiltration of storm water. Impervious area shall not include natural undisturbed surface rock.

"Infill (regulated residential)" means the creation of eight hundred to fifteen thousand square feet of additional net impervious area (IA) for a residential dwelling(s) and any associated improvements on the property through new development, redevelopment, or rehabilitation in existing neighborhoods.

"Lot" means a tract, plot or portion of a subdivision parcel of land intended as a unit for the purpose, whether immediate or future, for transfer of ownership or for building development.

"Metropolitan government" means the Metropolitan Government of Nashville and Davidson County.

"Municipal separate storm sewer system of the metropolitan government" means a conveyance, or system of conveyances (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels, and storm drains) designed or used for collecting or conveying stormwater; provided, however, that sanitary and combined sewers are not included in the definition of the municipal separate storm sewer system.

"Non-stormwater discharge" means any discharge to the municipal separate storm sewer system except as permitted by subsection 15.64.205(C) of this section.

"One-hundred-year flood" is one that has an average frequency of occurrence of once in one hundred years, determined from an analysis of floods on a particular watercourse and other watercourses in the same general region. Statistically, it has a one percent chance of occurring in any given year.

"Public system" shall mean and include storm water and flood control devices, structures, conveyances, facilities or systems, including natural watercourses, streams, creeks and rivers used wholly or partly to convey or control storm water or flood water within the jurisdictional boundaries of the metropolitan government. The public system shall include, without limitation, natural conveyances (a) for which the metropolitan government has assumed maintenance responsibility; (b) to which the metropolitan government has made improvements; (c) which have or may pose a threat to public property because of flooding; or (d) for which the metropolitan government is accountable under federal or state regulations governing protection of water quality.

"Qualified control structure" shall mean a device, structure, or practice meeting design standards and approved by the department that substantially limits the discharge and / or discharge rate of storm water from a parcel of property into or through any public system or that substantially improves the purity of storm water so discharged.

"Stormwater" shall mean stormwater run-off, snow melt run-off, surface run-off, street wash waters related to street cleaning and maintenance, infiltration other than infiltration contaminated by seepage from sanitary sewers or other discharges and drainage.

"Structure" means anything constructed or erected, the use of which requires a more or less permanent location on or in the ground. Such construction includes but is not limited to objects such as buildings, towers, smokestacks, overhead transmission lines, carports and walls. Structure shall not include fences.

"Structure, permanent" means a structure which is built of such materials and in such a way that it would commonly be expected to last and remain useful for a substantial period of time.

"Structure, temporary" means a structure which is built of such materials and in such a way that it would commonly be expected to have a relatively short useful life, or is built for a purpose that would commonly be expected to be relatively short-term.

"User" shall mean the owner of record of a non-exempt residential or non-residential property or the person or entity in possession if other than the owner.

"Watercourse" means a channel, natural depression, slough, gulch, stream, creek, pond, reservoir, or lake in which storm runoff and flood water flows either regularly or infrequently. This includes major drainageways for carrying urban storm runoff.

"Waters of the state" means any and all water, public or private, on or beneath the surface of the ground, which are contained within, flow through or border upon Tennessee or any portion thereof except those bodies of water confined to and retained within the limits of private property in single ownership which do not combine to effect a junction with natural surface or underground waters. (Amdt. 1 to Ord. BL2025-897 § 2, 2025; Ord. BL2025-897 §§ 1, 2, 2025; Ord. BL2016-513 § 1, 2017; Ord. BL2014-910 § 1, 2014; Ord. BL2011-940 § 2, 2011; Ord. BL2009-407 § 10, 2009; Ord. BL2008-345 § 1, 2009; Ord. BL2007-1440 § 1, 2007; prior code § 40-1-226)

15.64.015 Stormwater division.

There is hereby created a stormwater division within the metropolitan department of water and sewerage services ("MWS"), which in coordination with the department of public works, the metropolitan finance director, the metropolitan department of codes administration and the metropolitan planning commission, shall have the responsibility for compliance with the Clean Water Act of 1977, as amended and the National Pollution Discharge Elimination System permit (NPDES) and applicable regulations for stormwater discharges; developing stormwater management plans; identifying capital requirements and developing necessary financing for maintenance and rehabilitation of existing and new stormwater facilities; collecting fees and charges for the division; educating the public on the importance of stormwater management and pollution control; developing written regulations and technical guidelines as may be necessary to enforce the terms of this chapter; and other related duties as required by the director ("director") of MWS.

MWS shall be responsible for plan approval and construction inspection of both private stormwater facilities and public stormwater facilities. Additionally, MWS may accept the responsibility for the operation and maintenance of private stormwater facilities only pursuant to criteria defined and adopted by the stormwater management commission and upon a written agreement approved by the metropolitan council. (Ord. BL2023-1888 § 1, 2023; Ord. BL2016-513 § 2, 2017; Ord. BL2009-407 § 11, 2009; Ord. BL2007-1440 § 2, 2007)

15.64.020 Director of the department of water and sewerage services—Authority.

A. The director of the department of water and sewerage services, with the approval of the mayor, shall establish written regulations and technical guidelines as

may be necessary to enforce the terms of this chapter. These regulations shall be filed in the metropolitan clerk's office.

B. Reserved.

C. The director of the department of water and sewerage services shall have the authority to inspect private drainage systems within the county, and to order such corrective actions to said private drainage systems as are necessary to maintain properly the major and minor drainage systems within the county. (Ord. BL2016-513 § 3, 2017; Ord. BL2009-407 § 12, 2009; prior code § 40-1-227)

15.64.030 Reserved.

Editor's note—Ord. BL2016-513, § 4, passed April 4, 2017, repealed § 15.64.030, which pertained to director of codes administration—Authority and derived from prior code § 40-1-228.

15.64.031 Reserved.

Editor's note—Ord. BL2009-407, § 13, passed March 17, 2009, repealed § 15.64.031, which pertained to funding and derived from Ord. BL2007-1440 § 3, 2007.

15.64.032 Stormwater fees.

A. Storm Water Utility and User Fee Established. There is established a storm water utility and a system of storm water user fees for each parcel of property in Davidson County. The fees shall be used by the metropolitan government, acting through the department, exclusively for operation and management of the storm water utility and such storm water and flood control purposes as authorized in Tenn. Code Ann. § 68-221-1101, et seq. The fees shall be owed jointly and severally by the property owner of record and the person or entity in possession of such property in the amounts shown in Table 15.64.032. For each property having multiple dwelling or commercial units and more than one water meter, the director shall fairly allocate the storm water user fees owed among users based on their actual or estimated proportionate contribution to the storm water discharged by that property.

*B. Exemptions. The following properties shall be exempt from payment of the fees created by this section:

1. Owners and/or operators of agricultural land (see T.C.A. § 1-3-105(2)(A)(i) and T.C.A. § 68-221-1102(1)), in the municipality, upon which the owner or operator conducts activities that enable the owner or operator to satisfy the requirements of a qualified farmer or nurseryman (as defined by T.C.A. § 67-6-207(e)). The specific criteria for exemption of agricultural properties applies to parcels which are actively engaged in the commercial production of agricultural commodities (defined by T.C.A. § 67-6-301(c)(2)).

2. Properties from which no storm water is discharged into or through the public system.

3. Properties having no impervious area.

4. Properties wholly within the corporate boundaries of Belle Meade, Berry Hill, Forest Hills, Goodlettsville, and Oak Hill. Provided, however, that each such city may, upon approval of its legislative body, enter into the contract attached as Exhibit A to this ordinance, such that all property within its boundaries will participate in the metropolitan government's storm water utility and system of storm water user fees in the same manner as the remainder of the area within the General Services District. Such contract between any of the above cities and the metropolitan government shall be filed with the metropolitan clerk upon being executed.

C. Adjustments.

1. Properties on which a properly functioning qualified control structure has been installed shall be entitled to a downward adjustment in the fees established by this section in proportion to the improvement achieved by the qualified control structure in the purity of storm water discharged to the public system or the reduction achieved by the qualified control structure in rate or quantity of storm water discharged to the public system or both.

2. A downward adjustment of not more than fifty percent in the fees established by this section shall be available to any entity exempt from taxation under state or federal law that provides to its students or members a regular and continuing program of education approved by the director and concentrating on stewardship of water resources and minimization of demand on the public system.

3. The director shall develop regulations governing the fair and reasonable application of adjustments for properties entitled to one or more adjustment under the terms of this subsection. Prior to the adoption of such regulations governing adjustments in the fees, the regulations shall be published and public comment thereon received and considered. Further, such regulations shall be approved by the stormwater management commission before becoming effective.

D. Application. Adjustments created under this subsection shall be granted by the director upon written application by the user of any qualifying property and submission of such supporting documentation as the director may reasonably require. The director may, upon not less than thirty written days' notice, revoke a previously granted adjustment or cease to recognize an exemption upon his determination that the affected parcel of property does not qualify for the adjustment or exemption.

E. Appeals.

1. Appeals relating to exemptions shall be taken to the stormwater management commission within sixty days after the department issues a bill for storm water fees indicating that an applicable exemption has not been recognized.

2. An appeal from any decision made by the director under this section, including a decision relating to an adjustment or allocation among users of a single property, shall be taken to the stormwater management commission within sixty days after issuance of the decision.

3. Users shall be entitled to appeal the department's calculation regarding the amount of the user's impervious area to the stormwater management commission. In the event the stormwater management commission approves a reduction in the amount of billable impervious area, such user's storm water fee shall be adjusted accordingly on a prospective basis. Users shall not be entitled to a refund or credit of storm water fees paid prior to said appeal.

F. Collection. The director shall bill the fees established by this section to users who are retail customers of the department on their regular monthly water or sewer bills. The fees shall be shown as a separately identified line item. The director shall directly and at least semi-annually bill the fees created by this section to users not receiving water or sewer service from the department or shall contract for the inclusion of such fees on bills issued to the customers of other utilities operating in Davidson County, such contracts to be approved by resolution of the metropolitan council.

G. Remedies. In addition to any other remedy available to the metropolitan government under law or contract, the department shall discontinue water service to the property of any user who fails to pay the fees established by this section in accordance with the procedures regularly used by the department when customers fail to pay bills for water or sewer service. Fees established under this section shall constitute a lien against the property served, which lien shall run with the land. The metropolitan government may enforce the lien as prescribed by law.

H. Regulations. The director shall promulgate regulations to facilitate administration of this section. Prior to adoption, such regulations shall be published and public comment thereon received and considered. The regulations further shall be approved by the stormwater management commission before becoming effective. Any material change in the regulations shall be made in accordance with the same process.

I. Review of impervious area. The department shall review all user properties at least every five years to ensure such users are being billed for the correct amount of impervious area. Upon completion of the periodic review, if a user's amount of impervious area has changed, the department shall adjust such user's storm water fee accordingly to reflect the updated amount of impervious area.

Table 15.64.032
GRADUATED STORM WATER USER FEE SCHEDULE

All with less than 400 square feet of Impervious Area $0.00 Monthly Fee

Residential Properties	**Impervious Surface Area (Square Feet)**	**Monthly Fee**
Tier 1	400—2,000	$1.50
Tier 2	2,001—6,000	$6.00
Tier 3	more than 6,000	$11.00
Condominium (per unit)		$3.00
Non-Residential Properties	**Impervious Surface Area (Square Feet)**	**Monthly Fee**
Tier 1	400—6,000	$10.00
Tier 2	6001—12,800	$30.00
Tier 3	12,801—25,600	$70.00
Tier 4	25,601—51,200	$150.00
Tier 5	51,201—300,000	$300.00
Tier 6	300,001—1,000,000	$650.00
Tier 7	more than 1,000,000	$1,300.00
Condominium (per unit)		$10.00

(Ord. BL2023-1888 §§ 2—6, 2023; Ord. BL2017-908 § 1, 2017; Ord. BL2017-588 § 1, 2017; Ord. BL2016-513 §§ 5—10, 2017; Ord. BL2009-407 §§ 8, 9, 2009; Amdt. 1 to Ord. BL2007-1440 § 4, 2007; Ord. BL2007-1440 § 4, 2007)

Editor's note—Exhibit A to Ord. BL2009-407 is not set out herein, but is on file and available for inspection in the metropolitan clerk's office.

State Law Reference—The Tennessee legislature, in Public Chapter 1143, provided a new standard related to agricultural exemptions for the stormwater fee. Refer to T.C.A. 68-221-107, based on Public Chapter 1143.

15.64.033 Reserved.

Editor's note—Ord. BL2009-407, § 13, passed March 17, 2009, repealed § 15.64.033, which pertained to collection of fees and derived from Ord. BL2007-1440 § 5, 2007.

15.64.034 Reports of stormwater division.

The director of MWS shall submit an annual written report to the metro council, and shall personally appear annually before a joint meeting of the council public

works and budget and finance committees on the stormwater management program. Such report shall contain, at a minimum:

1. A list of properties that are exempt from the stormwater fees or have been granted adjustments under Section 15.64.032. The report shall identify each property by street address and owner name, and shall state the adjustment amount granted or the basis for considering the property exempt.

2. A list of all stormwater projects completed within the previous year for each council district broken down by priority category.

3. The status of the stormwater management program in metro.

4. The fee structure imposed to fund the implementation of the stormwater program and the adequacy of funds to implement the program.

5. Any long-range plans which have been developed to implement the provisions of this chapter.

6. The status of any projects to control stormwater run-off.

7. Any other information deemed relevant by the director or upon request of the public works or budget and finance committees of the metropolitan council. (Ord. BL2016-513 § 11, 2017; Ord. BL2007-1440 § 6, 2007)

15.64.035 Reserved.

Editor's note—Ord. BL2025-824, § 1, adopted June 3, 2025, repealed § 15.64.035, which pertained to stormwater capacity fee and derived from Ord. BL2023-1690 § 1, 2023; Amdts. 1 and 2 to Ord. BL2023-1690 § 1, 2023; Ord. BL2024-153 §§ 1, 2, 2024.

15.64.040 Stormwater management commission—Created.

A. There is created a metropolitan stormwater management commission which shall consist of seven members who must be residents of Metropolitan Nashville and Davidson County.

B. The membership of the commission shall be as follows:

1. Four members who shall be registered professional engineers in the State of Tennessee with expertise in civil engineering, hydraulics, hydrology, and/or environmental sciences. At least one such member shall be a civil or environmental engineer, preferably from the non-profit or academic sector.

2. Three members as follows: One licensed landscape architect or urban forester elected from nominations submitted by the Tennessee Chapter of the American Society of Landscape Architects and Tennessee Forestry Association; one licensed or retired attorney whose practice focuses on or has had significant practice experience in water, stormwater, or environmental law elected from a nomination submitted by the mayor's office; and one member serving as representative of a local environmental organization, elected from nominations submitted by the Metropolitan Department of Water and Sewerage Services

C. The four members who are registered professional engineers shall be appointed by the mayor and confirmed by a majority vote of the whole metropolitan council. The three members nominated in the manner listed in subsection B.2 above shall be elected by a majority vote of the whole membership of the metropolitan council.

D. All members shall have been residents of the metropolitan government area for not less than one year and shall continue to be so eligible as long as they shall serve.

E. Appointed members of the commission shall serve a term of four years. The terms of office of the first appointed members shall be staggered, two for a term of two years, two for a term of three years, and two for a term of four years. (Amdt. 1 to Ord. BL2025-771 § 1, 2025; Ord. BL2025-771 § 1, 2025; Ord. BL2023-1888 §§ 7, 8, 2023; Ord. BL2022-1528 § 11, 2023; Ord. BL2012-127 § 1, 2012; Ord. 89-1017 § 1, 1990; prior code § 40-1-229(a))

Editor's note—Ord. No. BL2012-127, § 4, states that all current members shall remain in office and all current alternate members shall be converted to full members.

15.64.050 Stormwater management commission—Organization.

Within ten days after its appointment, the stormwater management commission shall organize itself by election of one of its members as chairman and another as vice-chairman, who shall serve for a period of one year or until their successor shall have been chosen. The director of the department of water and sewerage services shall appoint the secretary to the commission who shall be the custodian of the minutes and records of the proceeding of the commission. The director of law shall appoint a legal advisor to the commission. (Ord. BL2025-771 § 2, 2025; Ord. BL2023-1888 §§ 9, 10, 2023; Ord. BL2012-127 § 2, 2012; Ord. BL2007-1440 § 7, 2007; prior code § 40-1-229(b))

15.64.060 Stormwater management commission—Compensation.

All appointed members of the commission shall serve without compensation and may be removed from membership on the commission by the mayor for continued absence from meetings of the commission, physical

disability, or other just cause. (Ord. BL2025-771 § 3, 2025; Ord. BL2023-1888 § 11, 2023; prior code § 40-1-229(c))

15.64.070 Stormwater management commission—Replacement of members.

Replacement of any appointed member of the commission resigning or dismissed from the commission shall be appointed in the same manner as prescribed for regular appointees. Any member appointed as a replacement shall serve only for the remainder of the term of the replaced member, unless subsequently reappointed for an additional term. (Ord. BL2025-771 § 4, 2025; Ord. BL2023-1888 § 12, 2023; Ord. BL2022-1528 § 12, 2023; prior code § 40-1-229(d))

15.64.080 Stormwater management commission—Regulations—Meetings—Duties.

The stormwater management commission shall adopt such rules and regulations as it may deem necessary to conduct its business. The commission, in open meeting, shall hear all appeals, variance requests, and other relevant issues under the provisions of this chapter. The commission shall meet at regular monthly intervals with the day and time to be determined by the chairman. In the event no appeals have been filed and there is no business pending, the chairman may cancel the meeting ten days before its scheduled date. (Ord. BL2025-771 § 5, 2025; Ord. BL2023-1888 §§ 13, 14, 2023; Ord. BL2016-513 § 12, 2017; prior code § 40-1-229(e))

15.64.090 Stormwater management commission—Voting regulations.

Four members of the stormwater management commission shall constitute a quorum. A majority vote of members present shall be required for actions by the commission. In the event that a quorum is not present, an application shall be readvertised for the next regular meeting. No member of the commission shall act in any case in which he has a personal interest. (Ord. BL2025-771 § 6, 2025; Ord. BL2023-1888 §§ 15, 16, 2023; Ord. BL2012-127 § 3, 2012; prior code § 40-1-229(f))

15.64.100 Appeal and variance request procedure.

A. 1. Whenever the director of the department of water and sewerage services shall uphold enforcement taken by the department for violations of this chapter or the regulations established in the Metropolitan Government of Nashville and Davidson County Stormwater Management Manual, Volume 1 - Regulations, the owner or authorized agent may appeal the decision of the director to the stormwater management commission. All appeals must be filed within thirty days after an adverse decision by the director of the department of water and sewerage. A filing fee in the amount established pursuant to Section 15.64.215 shall be charged to each applicant payable to metro water services.

2. Whenever the director of the department of water and sewerage services shall reject or refuse to approve a plan for noncompliance with this chapter or the regulations established in the Metropolitan Government of Nashville and Davidson County Stormwater Management Manual, Volume 1 - Regulations, the owner or authorized agent may appeal the decision of the director to the stormwater management commission. All appeals must be filed within thirty days after an adverse decision by the director of the department of water and sewerage services. A filing fee in the amount established pursuant to Section 15.64.215 shall be charged to each applicant payable to metro water services.

3. An applicant may request a variance from the regulations established in the Metropolitan Government of Nashville and Davidson County Stormwater Management Manual, Volume 1 - Regulations, by submitting a completed application to appear before the commission. A filing fee in the amount established pursuant to Section 15.64.215 shall be charged to each applicant payable to metro water services.

B. Any action taken by the commission shall be by motion which shall state the reasons therefore with particularity. All the decisions of the commission shall be by resolution, must be in writing, and must indicate the vote of each member of the commission upon the decision, and shall specify in what manner such variation or modifications shall be made, the conditions upon which they are to be made, and the reasons therefore.

C. Unless otherwise stated, every decision of the commission shall be final; subject however, to such remedy as any aggrieved party or the metropolitan government may have at law or in equity. Every decision shall be promptly entered into the minutes of the meeting of the commission by the secretary and filed with metro water services. The records of the commission shall be open to public inspection, and a copy of each decision shall be sent by mail or otherwise to each appellant.

D. The commission shall, in every case, render a decision without unreasonable or unnecessary delay. (Ord. BL2025-771 § 7, 2025; Ord. BL2023-1888 §§ 17, 18, 2023; Ord. BL2016-513 § 13, 2017; Ord. BL2007-1440 § 8, 2007; Ord. BL2001-642 § 1, 2001; prior code § 40-1-229(g))

15.64.105 Public notice requirements.

A. No action shall be taken by the stormwater management commission on any variance requests unless, at least ten days prior to consideration of the variance by the commission, the applicant for the variance provides written notice by U.S. Mail of the date, time, and place of the commission meeting to all property owners within one thousand feet of the subject property. The applicant shall be responsible for the costs associated with the preparation and mailing of such written notices.

B. In addition to the written notice required in subsection A. of this section, public notice signs shall be posted in accordance with the following provisions on any property subject to stormwater management commission consideration of a variance:

1. Public notice signs shall be installed by the applicant seeking the variance.

2. Public notice signs shall be installed on the property that is the subject of the variance no less than ten days prior to the meeting at which the stormwater management commission is to consider the variance.

3. One sign shall be posted along each three hundred feet of public street frontage. Whenever practical, signs shall be located within ten feet of a public street right-of-way and positioned in a manner to best inform the motoring public without creating a safety hazard.

4. All public notice signs shall be of adequate size and design to be clearly visible and legible to the motoring public. At a minimum, a public notice sign shall specify the time, date, and location of the scheduled public stormwater management commission meeting, the general nature of the variance request, and a phone number for additional information. (Ord. BL2025-771 § 8, 2025; Ord. BL2023-1888 §§ 19—22, 2023; Amdt. 1 to Ord. BL2020-424 § 1, 2020; Ord. BL2020-424 § 1, 2020)

15.64.110 Issuance of building and occupancy permits—Approval by director of the department of water and sewerage services.

A. Prior to the issuance of a use and occupancy permit for any structure within a development, unless exempted by Section 15.64.130, in which the drainage system is to be dedicated to the metropolitan government, the drainage system shall be inspected and accepted by director of the department of water and sewerage services personnel.

B. Prior to the issuance of a use and occupancy permit for any structure in a development, unless exempted by Section 15.64.130, where the drainage system is to remain private, a registered engineer shall submit to the director of the department of water and sewerage services a certificate that the drainage system is complete and functional in accordance with the plans approved by the director of the department of water and sewerage services.

C. No building permit, except for structures exempted in Section 15.64.130, shall be issued until grading, drainage and erosion control plans are approved by the director of the department of water and sewerage services or his designee, and the grading permit is issued.

D. Grading permits for certain projects, as described herein, shall be valid only for a period of eighteen months from the date of issuance. This limitation shall apply to project sites meeting each of the following criteria:

i. No contemporary building permit or use and occupancy permit has been issued or requested for the project site property;

ii. The project site is located upon a local street, minor local street, or arterial or collector street consisting of two lanes or less, according to the Major and Collector Street Plan;

iii. The project site is on a lot adjacent to a residential zone district or a district permitting residential use; and

iv. The project site is not owned by the Metropolitan Government of Nashville and Davidson County, the Metropolitan Nashville Airport Authority, the Nashville Electric Service, the Metropolitan Transit Authority, or the Metropolitan Development and Housing Authority.

Upon expiration of grading permits for properties meeting the criteria set forth in this subsection, such permits may be renewed only upon the adoption of a resolution, after a public hearing, by the metropolitan council receiving twenty-one affirmative votes to approve the permit renewal. Subject to the approval of the department of water and sewerage services, permits approved for renewal may be re-issued for an additional eighteen months without an additional application and review process.

As a condition of the issuance of grading permits subject to this section, the expiration or non-renewal thereof shall require the previously permitted operator to satisfy any closure requirements deemed necessary by the department of water and sewerage services for purposes of ensuring site stabilization and site stormwater management functionality, including installation of stormwater infrastructure and/or stormwater control measures, within a reasonable period of time.

E. Any nonpermitted drainage system or construction or fill located within a floodplain, shall upon written notice from the director of the department of water and sewerage services, be removed at the property owner's expense.

F. Metro water services may withhold approvals and grading permit issuance from any person, partnership, limited partnership, joint venture, corporation or any other type of business entity or related entity who has another grading permit project or building permit that is currently in violation of stormwater regulations. For purposes of this section, partnerships, limited partnerships, joint ventures, corporations or other type of business entities owned or operated by common person(s) or having common person(s) involved in the day-to-day operation of the business will be viewed as a related entity unless a significant change of control can be evidenced. (Amdt. 1 to Ord. BL2019-1475 § 1, 2019; Ord. BL2019-1475 § 1, 2019; Ord. BL2016-513 §§ 14, 15, 2017; Ord. BL2007-1440 § 9, 2007; prior code § 40-1-232)

15.64.120 Construction that may increase degree of flooding prohibited.

All construction, whether by private or public action, shall be performed in such a manner as to:

A. have no material increase in the degree of flooding in its vicinity or in other areas whether by flow restrictions, increased runoff or by diminishing retention capacity;

B. have no adverse impact for site design including, but not limited to, no rise in the 100-year base flood elevations on any project or development located in a documented floodplain as a result of development;

C. meet such other requirements as may be determined by the department of water and sewerage services.

The department of water and sewerage services shall promulgate regulations consistent with this section. (Subst. Ord. BL2010-794 § 1, 2010; prior code § 40-1-230(a))

15.64.130 Review of building permits—Drainage control referrals—Exemptions.

The department of water and sewerage services shall have authority to review all building permit applications which shall be referred to it by the department of codes administration or by officials of the satellite cities within the general services district to determine whether there is a need for plans for drainage, grading and/or erosion control. In making permit referrals to the department of water and sewerage services, the department of codes administration shall exempt permits for the following:

A. Individual residential dwellings in any given area that do not alter a drainage channel, do not alter the natural ground elevation or vegetation by an amount greater than specified in the technical guidelines to be issued by the metropolitan department of water and sewerage services, or do not meet the definition of regulated residential infill;

B. Commercial or industrial development that:

1. Disturbs less than ten thousand square feet,

2. Does not alter a drainage channel, and

3. Does not alter the natural ground elevation by more than five feet.

C. The exemptions listed in subsections A and B shall not be construed as exempting these activities from on-site drainage improvements that may be required in accordance with adopted building and construction codes, nor from compliance with Sections 15.64.150 through 15.64.180 and Sections 15.64.200 and 15.64.210. (Ord. BL2025-897 § 3, 2025; Ord. BL2016-513 § 16, 2017; Ord. BL2014-910 § 2, 2014; Ord. BL2007-1440 § 10, 2007; prior code § 40-1-230(b))

15.64.131 Infill development—Applicability and requirements.

A. No project shall add impervious area without meeting the requirements of this section, unless otherwise specifically exempt from regulation pursuant to this section.

B. There shall be three tiers of infill development for projects that are subject to infill regulation by this section:

1. Tier I - Projects creating between eight hundred and two thousand five hundred square feet of net additional IA and with the total lot IA exceeding 30.0% must treat, by means of capture of the first inch of rainfall runoff, an IA equal to the net increase of IA.

2. Tier II - Projects creating between two thousand five hundred and eight thousand square feet of net additional IA, without regard to total lot IA percent must treat, by means of capture of the first inch of rainfall runoff, an IA equal to the net increase of IA.

3. Tier III - Projects creating between eight thousand and fifteen thousand square feet of net added IA, without regard to total lot IA percent, must treat, by means of capture of the first inch of rainfall runoff an IA equal to the net increase of IA. Additionally, the project design must insure there is not an increase in the 10-year storm peak flow from the site, and be certified by a professional engineer.

C. Construction projects that meet the definition of regulated residential infill shall include provisions for the management of the first inch of rainfall runoff from an impervious area equal to the net added impervious area; and shall not be exempt from the provisions of Section 15.64.120 concerning prohibition of increase in the degree of flooding.

D. Prior to the net addition of at least eight hundred square feet of impervious area or issuance of a building permit, a sufficient development plan prepared and stamped by a licensed land surveyor or professional engineer and supporting information required by the latest version of the regulated residential infill guidance document shall be submitted to and approved by the metropolitan department of water and sewerage services.

E. The net added impervious area shall be calculated by subtracting the IA present in the aerial photography data obtained by metro in March 2014 from the proposed post-development IA and maintaining the original property boundary as the regulated project boundary, regardless of subdivision, re-plat, horizontal property regime, or any other modification of property boundaries by deed or plat.

F. The owner/developer of a project meeting the definition of regulated residential infill shall endeavor to treat the first inch of rainfall runoff from net added impervious area using methods from the regulated residential infill guidance document. If this treatment proves impractical, analysis of the downstream management system to identify adequate drainage per the regulated residential infill guidance document or improving downstream drainage to mitigate a known flooding problem with assistance from a professional engineer may be considered for all or part of the one inch treatment requirement.

G. The metropolitan department of water and sewerage services shall have the authority to offer additional runoff volume reduction measures and incentives. Refer to the latest version of the regulated residential infill guidance document for details.

H. Notwithstanding other provisions of this section to the contrary, excluded from infill regulation are projects that:

1. Add less than eight hundred square feet of net new IA,

2. Add more than fifteen thousand square feet of net new IA,

3. Are on lots larger than forty thousand square feet, or

4. Are on lots with a grading permit previously filed with the metropolitan department of water and sewerage services, as long as the post-construction IA conforms to the original grading plan.

I. Projects on lots larger than forty thousand square feet may seek infill classification on a case-by-case basis. (Ord. BL2025-897 § 4, 2025; Ord. BL2014-910 § 3, 2014)

15.64.140 Property developments—Drainage and erosion control plans required when.

A. Persons responsible for property developments shall be required to submit detailed grading and drainage plans, with supporting calculations prepared by a registered engineer, to the department of water and sewerage services for review and approval prior to initiation of work. Where applicable, an erosion control plan prepared by a design professional or soil scientist shall be included in order to prevent sedimentation from reducing the flow carrying capacity of the downstream drainage system.

B. For purposes of this section, property developments shall include the grading, excavation, clearance or other alteration of the landscape for other than agricultural purposes, whether or not a building application has been filed, and whether or not subdivision of the land or construction on the land is contemplated in the near future.

C. Review of a grading and drainage plan.

1. Initiation of a review. Review of a grading and drainage plan by the department may be initiated by the district council member by submitting a written request to the director of water and sewerage services.

2. Notice of review. Within five business days of the initiation of a review, the department of water and sewerage services shall send written notice of the review to the zoning administrator, the owner(s) of the property for which the review has been requested, and the district council member. The department of water and sewerage services shall provide the grading and drainage plan and any other documentation relevant to the review along with the written notice.

3. Procedure. Within thirty days from the initiation of a review, department director or designee shall inspect the site and determine whether grading activity, including excavation, clearance, fill, or other alteration of the landscape, on the site is in compliance with the requirements of the applicable grading and drainage plan and state and local grading regulations.

4. Applicability. This subsection C shall apply to projects when the following factors apply:

a. The grading and drainage plan has been approved and active for more than sixty days;

b. Fill, not authorized by law, from off-site activity has been brought to and stored on the site; and

c. No building permit or use and occupancy permit has been issued by the department of codes administration for the site.

5. Determination of compliance.

a. If the department director or designee determines that the grading activity is not in compliance with the approved grading and drainage plan or this subsection, the department director or designee shall revoke the grading and drainage plan.

b. If the department director or designee determines that the grading activity is in compliance with the approved grading and drainage plan and this subsection, the review is concluded and the grading activity may commence or continue in accordance with the issued grading and drainage plan.

6. Review of building permit for site. The department of water and sewerage services shall not review any building permit application referred pursuant to Section 15.64.130 for a site for which a review pursuant to this subsection has been initiated until the site has been determined to be in compliance in accordance with this subsection.

7. No part of this subsection shall be construed as permitting landfills as defined and regulated by federal or state law. (Amdt. 2 to Ord. BL2024-426 § 1, 2024; Amdt. 1 to Ord. BL2024-426 § 1, 2024; Ord. BL2024-426 § 1, 2024; Ord. BL2019-1475 § 2, 2019; Ord. BL2017-908 § 2, 2017; Ord. BL2016-513 §§ 17, 18, 2017; prior code § 40-1-230(c))

15.64.150 Application of Tennessee Water Quality Control Act and Federal Water Pollution Control Act.

Approval by the metropolitan government does not relieve the developer of obtaining any permits required by the Tennessee Water Quality Control Act and Federal Water Pollution Control Act. (Ord. BL2016-513 § 19, 2017; prior code § 40-1-231(f))

15.64.160 Applicability of floodplain regulations.

Uses permitted within the floodplain shall be in accordance with Article V of Chapter 17.36 of this code. The regulations and controls set forth in this chapter shall be applied within the areas designated on the zoning map or on special overlays thereto which are made a part of this chapter, and may be viewed upon request at the office of the metropolitan clerk. However, nothing contained herein shall prohibit the application of the regulations in Article V of Chapter 17.36 to lands which can be demonstrated by competent engineering survey, using the adopted profiles from which the flood protection elevation is derived, to lie within any floodplain, and conversely, any lands which can be demonstrated by competent engineering to lie beyond the floodplain shall not be subject to the regulations in Article V of Chapter 17.36. Any lands within the areas designated as floodplains on the zoning map or special overlays thereto shall be subject to the regulations and controls pertaining to floodplains as set forth in this chapter. (Ord. BL2016-513 §§ 20, 21, 2017; Subst. Ord. BL2010-794 § 2, 2010; prior code § 40-1-231(a))

15.64.170 Development within floodways—Restrictions.

A. No new structure shall be constructed within the floodway. Notwithstanding the foregoing, a structure located in the floodway as of the effective date of this ordinance may be maintained and may be repaired in the event of a casualty loss not exceeding fifty percent of appraised value of improvements on the property, provided that no such existing structure located in the floodway shall be enlarged or expanded beyond its existing height or building footprint.

B. Notwithstanding the provisions of subsection A. to the contrary, the stormwater division may allow the construction of the following types of structures within the floodway, consistent with the provisions of the stormwater management manual, provided that the structure is designed and engineered, in such a manner so as to have no adverse impact:

a. Grade-level surface parking areas, paths and hiking trails.

b. Temporary structures, defined in Section 15.64.010 as "structure, temporary", that are one hundred square feet in size or less and are not used as a dwelling unit for humans.

c. Water-related features such as bridges, wharfs, docks, and boat ramps.

d. Public infrastructure installed by or for the benefit of the metropolitan government.

e. Rebuilding of an existing residential structure in the floodway that has sustained cumulative casualty loss in excess of fifty percent, provided the rebuilt structure is within the same building footprint as the damaged or destroyed structure and is elevated in accordance with the requirements of the Metro Stormwater Manual.

f. Athletic fields:

i. Athletic fields and existing pervious outdoor recreational training facilities used for public or private recreational purposes, including facilities associated with such recreational areas such as dugouts, bleachers, concession stands, storage buildings, pavilions or other roof systems without walls, and other similar structures or facilities.

ii. For the purposes of this section, "athletic field" means pervious, natural land used for recreational purposes by members of the general public on public

land or at educational facilities, such as soccer fields, football fields, golf courses, driving ranges, or baseball diamonds. "Athletic field" does not mean an athletic facility composed of impervious material, such as tennis courts, basketball courts, or fields with artificial or synthetic grass.

iii. "Athletic field" shall also include existing, privately owned, outdoor commercial facilities located on public or privately owned land, provided that:

1. The athletic field and appurtenances thereto existed prior to April 1, 2025,

2. Any such structure complies with Metro Stormwater Management Manual requirements for flood elevation, and

3. Any modifications to or reconfiguration of any such structure shall not increase the total impervious surface area beyond the total impervious surface area pre-existing within the floodway as of April 1, 2025.

g. Modification or enlargement of an existing building or other structure located partially or entirely within the floodway of the Cumberland River, so long as such building or structure was in active commercial or industrial use as of July 1, 2012. No such modification or enlargement shall be permitted within the floodway of any Cumberland River tributary or undertaken without the approval of the stormwater management commission. (Ord. BL2025-907 § 1, 2025; Ord. BL2024-294 § 1, 2024; Ord. BL2023-1888 § 23, 2023; Amdt. 1 to Ord. BL2018-1407 § 1, 2019; Ord. BL2018-1407 § 1, 2019; Ord. BL2012-257 § 1, 2012; Amdt. 1 to Ord. BL2011-3 § 2, 2011; Ord. BL2011-3 §§ 1, 2, 2011; Ord. BL2011-940 § 1, 2011; Subst. Ord. BL2010-794 § 4, 2010; prior code § 40-1-231(d))

15.64.175 Residential development along the Cumberland River.

A. Along the Cumberland River, there shall be preserved a fifty foot buffer as measured from the floodway. No new residential structure may be built within this floodway buffer.

B. Building within the Cumberland River floodway buffer may continue to the extent permitted in Section 15.64.170. (Ord. BL2018-1157 § 1, 2018)

15.64.180 Alterations of floodplains and drainage channels—Requirements.

No alterations of floodplain land and drainage channels may be made without the written approval of the director of the department of water and sewerage services. All applicable requirements of this title and, in addition, the following conditions must be met before such approval may be granted:

A. The placement or construction of a levee, earth fill, building or other structure which alters the floodplain area shall only be permitted based on a plan prepared by a registered and licensed professional engineer of Tennessee, showing existing and proposed elevations, existing and proposed drainage channels, and existing and proposed structures, and the plan shall be approved by the director of the department of water and sewerage services of the metropolitan government certifying that the alteration and construction as proposed would not increase the degree of flooding in other areas, and that any structures proposed to be constructed in the floodplain shall meet the following special conditions.

1. The minimum floor elevation of that portion of any structure intended for human occupancy shall be at least equal to or higher than four feet above the base flood elevation. Those portions of such structures not intended for human occupancy shall be at least equal to or higher than one foot above the base flood elevation. All other related facilities thereto such as electrical equipment, water service, and sanitary sewer connections shall be at least equal to or higher than one foot above the base flood elevation.

2. The minimum floor elevation of any structure not intended for human occupancy, as defined, shall be at least equal to or higher than one foot above the base flood elevation. Floodproofing of these structures will only be authorized by the director of the department of water and sewerage services as specific individual exceptions to minimum floor elevation requirements where it can be shown that the proposed floodproofing is acceptable from an engineering standpoint.

B. The proposed excavation, filling or change of alignment of any existing channel under the jurisdiction of the U.S. Corps of Engineers shall be approved by the corps of engineers.

C. The plan is approved by the metropolitan planning commission taking into account the above conditions as well as any other pertinent factors. Any duly approved alteration of the floodplain will be so noted on the official zoning map as a matter of information. This notation will be made upon certification by the director of the department of water and sewerage services to the planning commission that such alteration has been completed in accordance with the approved plan. (Ord. BL2016-513 §§ 22, 23, 2017; Ord. BL2007-1440 § 11, 2007; prior code § 40-1-231(b))

15.64.190 Responsibility for off-site drainage improvements.

The construction and financing of any required off-site drainage improvement necessitated by private development within the watershed shall be the responsibility of the developer. (Prior code § 40-1-234)

15.64.195 Reserved.

Editor's note—Ord. BL2016-513, § 24, passed April 4, 2017, repealed § 15.64.195, which pertained to stormwater master planning district and derived from Ord. BL2009-461 § 1, 2009; Ord. BL2008-345 § 2, 2009.

15.64.200 Floodproofing measures.

Floodproofing measures such as the following shall be designed consistent with the flood protection elevation for the particular area, and flood velocities, forces and other factors associated with the flood protection elevation. The director of the department of water and sewerage services shall require that the applicant submit a plan or document certified by a registered professional engineer or architect that the floodproofing measures are consistent with the flood protection elevation for the particular area:

A. Anchorage to resist flotation and lateral movement;

B. Installation of watertight doors, bulkheads and shutters;

C. Reinforcement of walls to resist water pressures;

D. Use of paints, membranes or mortars to reduce seepage of water through walls;

E. Addition of mass or weight to structures to resist flotation;

F. Installation of pumps to lower water levels in structures;

G. Construction of water supply and waste treatment systems to prevent the entrance of floodwaters;

H. Pumping facilities for subsurface drainage systems for buildings to relieve external foundation wall and basement floor pressures;

I. Construction to resist rupture or collapse, caused by water pressure or flotation debris. (Ord. BL2007-1440 § 12, 2007; prior code § 40-1-231(c))

15.64.205 Non-stormwater discharges.

A. Except as hereinafter provided, all non-stormwater discharges into community waters, into the waters of the state, or into the municipal separate storm sewer system of the metropolitan government are prohibited and are declared to be unlawful.

B. Unless the director has identified them as a source of contaminants to community waters, the waters of the state, or the municipal separate storm sewer system of the metropolitan government, the following discharges are permitted:

1. Stormwater as defined in TCA Section 68-221-1102(5);
2. Water line flushing;
3. Landscape irrigation;
4. Diverted stream flows;
5. Rising groundwaters;
6. Uncontaminated groundwater infiltration (as defined at 40 CFR 35.2005(20)) to separate storm sewers;
7. Uncontaminated pumped groundwater;
8. Discharges from potable water sources;
9. Foundation drains;
10. Air conditioning condensate;
11. Irrigation water;
12. Springs;
13. Water from crawl space pumps;
14. Footing drains;
15. Lawn watering;
16. Individual residential car washing;
17. Flows from riparian habitats and wetlands;
18. Dechlorinated swimming pool discharges;
19. Street wash waters resulting from normal street cleaning operations;
20. Discharges or flows from emergency fire fighting activities.

C. The director of MWS, with the approval of the mayor, shall have authority to implement this chapter by appropriate regulation. The director of MWS shall enforce the provisions of this chapter, and he or his duly authorized representative may enter, upon presentation of proper identification to the owner, occupant, or person in control thereof, any building, structure or premises within the area of jurisdiction of the metropolitan government to perform any duty imposed upon him by this chapter or by the regulations and technical guidelines promulgated by the department pursuant to this chapter. Such entry for the purpose of making any inspection required in this chapter shall be made during reasonable hours, so as to cause the least inconvenience to the occupants thereof, unless emergency circumstances exist. It is unlawful for any person, whether owner, occupant, or party in control of the building, structure, or premises, to refuse the entry of the director or any of the director's duly authorized representatives or to interfere in any manner in the performance of the duties imposed upon the director by this chapter or by the regulations and technical guidelines promulgated by the department pursuant to this chapter.

D. Discharges with valid and effective NPDES permits issued by the State of Tennessee that meet the pollutant parameters specified within each permit are not prohibited by this section.

E. The provisions of this section, including subsection C of this section, shall not apply to sanitary or combined sewers, which are governed by Chapter 15.40 of the Metropolitan Code of Laws. (Ord. BL2016-513 §§ 25—28, 2017; Ord. BL2007-1440 § 13, 2007; Ord. BL2001-642 § 2, 2001; Ord. 97-1016 §§ 1—7, 1998)

15.64.210 Liability limitation.

The degree of flood protection intended to be provided by this chapter is considered reasonable for regulatory purposes, and is based on engineering and scientific methods of study. Larger floods may occur on occasions, or the flood height may be increased by manmade or natural causes, such as bridge openings restricted by debris. This chapter does not imply that areas outside floodplain zoning district boundaries or land uses permitted within such district will always be totally free from flooding or flood damages. Nor shall this chapter create a liability on the part of, or a cause of action against the metropolitan government or any officer or employee thereof for any flood damages that may result from implementation of this chapter. (Prior code § 40-1-231(e))

15.64.215 Stormwater plan and permit review charge.

Notwithstanding any other provision of the Metropolitan Code of Laws, the department shall develop a schedule of charges for services provided in reviewing permit applications, processing appeal and variance requests to the stormwater management commission, or reviewing plans submitted by private entities for proposed projects that must comply with the metropolitan government's stormwater management regulations. The schedule of charges shall not exceed the department's actual costs incurred in providing such services. A copy of the schedule of charges shall be filed with the metropolitan clerk, furnished to each member of the metropolitan council and made available on request to any citizen of Davidson County. The department shall bill and collect in accordance with the schedule of charges, which may be amended from time to time to reflect changes in the department's actual costs of providing the services contemplated herein. Fees may be waived by the department to incentivize certain practices. (Ord. BL2023-1888 § 24, 2023; Ord. BL2016-513 § 29, 2017; Ord. BL2007-1457 § 15, 2007)

15.64.220 Violations—Penalties.

A. Any violation of this chapter shall be punishable by an administrative penalty in an amount authorized by Tennessee Code Annotated, Section 68-221-1106. For purposes of assessing administrative penalties under this chapter, each day of violation shall constitute a separate violation. Any assessment of an administrative penalty shall be in writing and shall be served on the violator in any manner authorized by law.

B. In assessing an administrative penalty, the following factors may be considered:

1. The harm done to the public health or the environment;

2. Whether the administrative penalty imposed will be substantial economic deterrent to the illegal activity;

3. The economic benefit gained by the violator;

4. The amount of effort put forth by the violator to remedy this violation;

5. Any unusual or extraordinary enforcement costs incurred by the municipality;

6. The amount of administrative penalty established by ordinance or resolution for specific categories of violations; and

7. Any equities of the situation which outweigh the benefit of imposing any administrative penalty or damage assessment.

C. The department may also assess damages proximately caused by the violator to the municipality which may include any reasonable expenses incurred in investigating and/or enforcing violations of this part, or any other actual damages caused by the violation.

D. In addition to all other remedies provided by law, the metropolitan government shall have the right to injunctive relief for any violation of this chapter. (Ord. BL2016-513 §§ 30, 31, 2017; Ord. BL2010-639 § 1, 2010; Ord. BL2001-642 § 3, 2001; Ord. 95-1329 § 11, 1995)

15.64.225 [Enforcement of county-wide emergency health orders.]

Notwithstanding any other provision of this title, it is a condition of any permit or work authorization issued pursuant to the authority granted herein, including those issued prior to the effective date hereof, that the permittee and its employees abide by applicable laws, rules, regulations and orders, including without limitation those emergency orders issued by the chief medical director in connection with a declared state of emergency in all or part of Davidson County. Employees of a department that has authorized work or issued a permit pursuant to this title may order the cessation of work or

specific activities, or the suspension of a permit, on any work site operating under such permit, for a violation of an emergency order.

Notice of the stop work order shall be in writing and shall be given to the owner of the property or to his agent or to the person in charge of the work or overseeing the operation. When, in the opinion of the director of the department that authorized work or issued a permit, or the director's agent, that an emergency exists, a written stop work order shall not be required, and in such instances, oral notice to the owner, his agent or the person in charge of the work shall have the same force and effect as a written order. Any violation of the stop work order shall be assessed as a civil penalty at the rate of fifty dollars per day. In addition, where a violation exists, the director of the department or the director's agent may request that utility service be curtailed until the violation is corrected or abated. Appeals from the stop work order may be made to the relevant board or commission that oversees the authorization of the work or issuance of the permit. (Ord. BL2020-421 § 1, 2020)

15.64.230 Notification to property owners upon amendments to flood maps.

Within thirty days after the publication of new flood maps for Davidson County prepared by the federal government are received by metro, the metropolitan planning department will attempt to provide written notice to every property owner, to the address on record at the property assessor's office at the time of the mailing, whose property is included within the 100-year floodplain or floodway for the first time. These mailings are intended to be informational only, sent for the convenience of the owners, and the metropolitan government will not be liable for failing to notify a property owner or if the information in the notice is incorrect or incomplete. (Amdt. 1 to Ord. BL2011-903 § 1, 2011; Ord. BL2011-903 § 1, 2011)

Division II. Private Facilities

Chapter 15.68

PRIVATE FIRE HYDRANTS

Sections:

15.68.010	**Applicability.**
15.68.020	**Installation.**
15.68.030	**Maintenance requirements.**
15.68.040	**Separate violations—Penalty.**

15.68.010 Applicability.

The standards for the installation and maintenance of water hydrants for fire protection and service provided for by this chapter shall be applicable to all such hydrants located and constructed on private streets, in residential housing developments (including planned unit developments), and in all areas of metropolitan government where private water hydrants for fire service are installed; provided however, industrial facilities that have private water supply and firefighting capabilities shall be exempt from the provisions of Section 15.68.030 provided such facilities provide their own inspections services as approved by the chief of the metropolitan fire department. (Ord. 92-215 § 1, 1992; prior code § 17-1-51)

15.68.020 Installation.

A. All water hydrants shall use a minimum of a six-inch water main.

B. No building or structure, or any part thereof, shall be more than five hundred feet from a hydrant, as measured by normal means of vehicular transit, via approved hard surface road, unless a waiver or alternative proposal is approved by the Metropolitan Fire Marshal pursuant to a review process to be developed by the Metropolitan Fire Marshal. The provisions of this subsection shall not apply to a single-family residential structure constructed on a lot of five acres or more in size.

C. All hydrants shall be installed in a manner providing a radius of ten feet that is unobstructed either mechanically or visually.

D. All hydrants shall be painted with aluminum paint with the dome color coded as indicated as follows, so as to indicate the gallons per minute flow (GPM):

Color	GPM
Orange	1,000 or more
Green	500—1,000
Black	500 or less

E. All hydrants shall be installed in accordance with an approved plan, by an authorized and property licensed contractor using materials and methods required by applicable codes and ordinances.

F. A metal tag shall be permanently attached by bolt or other approved method to each hydrant and contain the stamped message: "FOR OFFICIAL USE ONLY. UNAUTHORIZED USE PROHIBITED BY LAW." Tags shall be attached in a manner as not to obstruct the operation of hydrant. (Ord. BL2008-170 § 1, 2008; Ord. BL2007-47 § 1, 2007; Ord. 95-1541 §§ 1, 2, 1995; prior code § 17-1-52)

15.68.030 Maintenance requirements.

A. All private water hydrants for fire protection in Davidson County, encompassed by Section 15.68.010, shall be inspected by a qualified service provider licensed in the state of Tennessee (hereafter "licensed service provider") appointed by the party responsible for the private water hydrants. The responsible party shall be required to ensure that the private water hydrants are inspected and tested annually, or as required by the adopted fire code. A licensed service provider shall be required to perform the annual inspection and testing of private water hydrants, including any servicing as required. Private water hydrant inspection, testing, and servicing reports must be submitted by the licensed service provider to the Nashville Fire Department - Fire Marshal's Office through the established reporting process.

B. The responsible party for a private water hydrant shall be responsible for contracting a licensed service professional to obtain an annual Private Fire Hydrant - Servicing and Testing operational permit from the Nashville Fire Department - Fire Marshal's Office.

C. The responsible party shall perform general preventative maintenance of their water hydrants at six-month intervals to ensure proper operation of hydrants during emergency situations.

D. The responsible party shall, at least monthly, cause visual inspections of all their water hydrants and water sources therefor.

E. All deficiencies specified in any report from the licensed service professional shall be completed or repaired by a licensed professional at the expense of the responsible party and notification submitted by the licensed service provider to the Nashville Fire Department - Fire Marshal's Office through the established reporting process.

F. No person other than an authorized official of the metropolitan government or an authorized person performing maintenance or repair activities required by this chapter shall open, operate, flow, test, maintain or repair a hydrant.

G. The Nashville Fire Department and the department of water and sewerage services shall have the authority to issue and promulgate rules and regulation as required for the implementation of the provisions of this chapter. (Ord. BL2022-1345 § 1, 2022; Ord. BL2005-912 § 1, 2006; Ord. 95-1541 §§ 3, 4, 1995; Ord. 90-1248 § 1, 1990; prior code § 17-1-53)

15.68.040 Separate violations—Penalty.

Each day of a violation of this chapter shall be a separate offense and shall be subject to a fine not to exceed five hundred dollars for each offense. (Ord. 95-1541 § 5, 1995; prior code § 17-1-54)

Chapter 15.72

PRIVATE SEWAGE DISPOSAL SYSTEMS

Sections:

15.72.010	**Health regulations—Adopted by reference.**
15.72.020	**Private connections permitted when.**
15.72.030	**Temporary facilities for construction workers.**
15.72.040	**Septic tanks—Testing by department of health.**
15.72.050	**Privies permitted when.**
15.72.060	**Runoff of contents unlawful when.**
15.72.070	**Discharge of waste into any body of water—Permit required.**

15.72.010 Health regulations—Adopted by reference.

Rules and regulations of the commissioner of the Tennessee Department of Public Health, which became effective July 10, 1974, are adopted and incorporated into this chapter as regulations governing private sewage disposal systems of the metropolitan government by reference, as fully as though copied into this chapter. Where a provision of this chapter is found to be in conflict with a provision found in the rules and regulations of the metropolitan board of health, the provisions as promulgated by the commissioner of the Tennessee Department of Public Health as found in this chapter shall prevail. (Prior code § 20-1-160.1)

15.72.020 Private connections permitted when.

A. Sewage from any building or premises shall be discharged directly into the municipal sewage disposal system or into a facility connected with such municipal system, but if there is no public sewer or other part of the municipal sewage disposal system to which connection can be made from the building or premises concerned or if it is impracticable to discharge sewage from such building or premises into the municipal system, a private sewage disposal system may be used.

B. In the event any building or premises fails to connect with an available public sewer and the malfunctioning or inadequacy of the private sewage disposal system serving such building or premises gives rise to an unsanitary condition, threatening or causing a nuisance, the chief medical director or authorized personnel of the department of health shall serve written notice upon the owner, occupant or agent of the owner, of the building or premises, requiring a connection to the public sewer within a specified period of time, which shall reasonably take into consideration the circumstances of such owner, occupant or agent, but which shall primarily reflect the public health exigencies involved. Such connection shall be at the expense of the owner, occupant or agent.

C. In the event that the connection is not made within the time specified by the chief medical director or authorized personnel of the department of health, the building or premises may not be occupied pending such connection, and the owner, occupant or agent shall be guilty of a violation of this code. (Prior code § 20-1-160)

15.72.030 Temporary facilities for construction workers.

Temporary sanitary facilities constructed according to regulations of the department of health shall be provided for workers engaged in the construction of commercial, industrial or public works projects. (Prior code § 20-1-165)

15.72.040 Septic tanks—Testing by department of health.

Authorized personnel of the department of health shall have the right to enter upon any premises upon which is located septic tanks or drainage or disposal fields, and they shall be empowered to examine and inspect all such septic tanks and drainage and disposal fields, and to test such facilities by putting dye into the plumbing fixtures which they serve. Whenever such septic tanks, drainage or disposal fields are found to be in an unsanitary condition and to constitute a public health nuisance, the same shall be condemned upon action by the chief medical director, and the owner, occupant or agent shall put such premises in a sanitary condition and abate such nuisance within the time stated upon the written notice served upon him by the chief medical director or his authorized representative. (Prior code § 20-1-161)

15.72.050 Privies permitted when.

A. Privies shall not be used in the urban services district unless the chief medical director, in writing, authorizes the construction and temporary use of a privy for a stated period. Elsewhere, privies shall only be constructed according to the regulations of the department of health.

B. No privy shall be maintained or used so as to create a nuisance or health hazard. The storage pit of any privy shall be covered and protected so as not to be exposed to the outer air. It is unlawful to pollute a well or water supply system or to discharge sewage on surface of

ground level. The privy shall be protected against rodents, insects and other pests. When a privy is no longer in use, it shall be thoroughly cleansed, so that it will not cause a nuisance or health hazard, and it shall be filled in so as to prevent accidents. (Prior code § 20-1-162)

15.72.060 Runoff of contents unlawful when.

It is unlawful for any person to draw off or allow to run on any ground, street or alley in the metropolitan government area the contents or any part thereof of any vault, privy, cesspool or place where animals or fowl are kept. Any person so offending or failing to comply with this section after seventy-two hours' notice from the department of health to abate the same shall be deemed guilty of a violation of this code. (Prior code § 20-1-163)

15.72.070 Discharge of waste into any body of water—Permit required.

A. It is unlawful for any person to dispose of human waste, household waste, business waste or industrial waste, or to pipe or transmit sewage or effluent from any septic tank or other sewer system of any type into any stream, river, lake, pond, marsh, watercourse, waterway, well, cave, sinkhole, open ditch, spring, irrigation or drainage system, or any body or accumulation of water, surface or underground, natural or artificial, public or private, without having first obtained a permit issued by the metropolitan board of health. The board of health is authorized to promulgate such rules and regulations pertaining to the issuance of such permit as it deems necessary to insure that the health of the residents of the metropolitan government is protected.

B. Any person violating any of the provisions of this section shall, upon a judgment of guilty thereof, be penalized not less than nor more than one hundred dollars for each offense. Each day that such condition shall exist shall constitute a separate offense. (Prior code § 20-1-164)

Title 16

BUILDINGS AND CONSTRUCTION

Chapters:

16.04	**Administration and Enforcement**
16.08	**Building Codes**
16.12	**Plumbing Codes**
16.16	**Gas/Mechanical Regulations**
16.20	**Electrical Code**
16.24	**Property Standards**
16.28	**Building Permits**
16.32	**Inspections**
16.33	**Rental Inspections**
16.36	**Certificates of Occupancy**
16.40	**Floor Loads**
16.44	**Noise Control**
16.48	**Preservation of Existing Buildings**
16.52	**Unsafe Buildings**
16.56	**Flood Control Requirements**
16.60	**Sustainable Development Design Standards**

Chapter 16.04

ADMINISTRATION AND ENFORCEMENT

Sections:

Article I. General Requirements

16.04.010 Intent—Remedial.
16.04.020 Scope.
16.04.030 Maintenance of buildings required—Owner's responsibility.
16.04.040 Right of entry.
16.04.050 Additional requirements—Authority of director.
16.04.060 Alternate materials and methods—Authorization by director.
16.04.070 Issuance of permits and notices.
16.04.080 Collections—Records.
16.04.090 Registration and bond required when.
16.04.100 Certificate of occupancy—Issuance of electrical releases and temporary certificates.
16.04.110 Noncompliance—Stop work order.
16.04.120 Revocation of permits when.
16.04.130 Construction standards.
16.04.140 Proof of compliance—Test reports.
16.04.150 Work on Sunday—Special permit required.
16.04.160 Interference with director prohibited.
16.04.170 Conflicts with other ordinances.
16.04.172 Violations—Penalties—Revocation of permits.
16.04.175 [Enforcement of county-wide emergency health orders.]
16.04.177 [Annual adjustment of fees.]

Article II. Fire Zone Map

16.04.180 Adopted by reference.

Article III. Specific Structures and Uses

16.04.190 Demolition—Removal of debris required.
16.04.200 Reserved.
16.04.210 Signs.
16.04.220 Street numbers—Display required when.
16.04.230 Trailers and mobile homes.
16.04.240 Reserved.

Article I. General Requirements

16.04.010 Intent—Remedial.

Chapters 16.04 and 16.28 through 16.56 are declared to be remedial, and shall be construed to secure the beneficial interests and purposes thereof, which are public safety, health and general welfare, through structural strength, stability, sanitation, adequate light and ventilation and safety to life and property from fire and other hazards incident to the construction, alteration, repair, removal, demolition, use and occupancy of buildings, structures or premises. (Prior code § 11-1-1)

16.04.020 Scope.

A. The provisions of Chapters 16.04 and 16.28 through 16.56 shall apply to the construction, alteration, repair, maintenance, moving, removal and demolition, and to the location, use and occupancy, of every building or structure or part thereof, and to any appurtenances or equipment connected or attached thereto, and to the installation of any heating, air-conditioning or ventilating system or unit, the construction and erection of any fence, sign, billboard, swimming pool or similar structure for which a permit is required, within the area of jurisdiction of the metropolitan government; except that the provisions of Chapters 16.04 and 16.28 through 16.56 shall not apply to the erection, construction, repair, alteration or maintenance of any farm accessory buildings or structures where such buildings or structures are located within a zoned agricultural or unclassified rural district and are constructed on farmsteads in excess of five acres or more.

B. No provision of Chapters 16.04 and 16.28 through 16.56 shall be held to deprive any federal or state agency, or any municipal authority having jurisdiction, of any power or authority, which it had on October 22, 1964, or of any remedy then existing for the enforcement of its orders, nor shall it deprive any individual or corporation of its legal rights as provided by law. (Prior code § 11-1-2)

16.04.030 Maintenance of buildings required—Owner's responsibility.

All buildings and structures, both existing and new, and all devices, equipment and safeguards required by Chapters 16.04 and 16.28 through 16.56 in a building when it is erected, altered or repaired, shall be maintained in good working order by the owner or his designated agent. (Prior code § 11-1-3)

16.04.040 Right of entry.

The director of codes administration shall enforce the provisions of Chapters 16.04 and 16.28 through 16.56, and he or his duly authorized representative may enter, with the consent of the owner or occupant or with a valid search warrant, and upon presentation of proper identification, any building, structure or premises within the area or jurisdiction of the metropolitan government to perform any duty or responsibility imposed upon him by such chapters. (Prior code § 11-1-4)

16.04.050 Additional requirements—Authority of director.

Any requirements necessary for the strength or stability of an existing or proposed building or structure or for the safety of the occupants thereof, not specifically covered by Chapters 16.04 and 16.28 through 16.56, shall be determined by the director of codes administration, subject to appeal to the board of building code appeals. (Prior code § 11-1-9)

16.04.060 Alternate materials and methods—Authorization by director.

A. The provisions of this code are not intended to prevent the use of any material, method of construction or means of providing life safety not specifically prescribed by this code, provided any such alternate has been approved and its use authorized by the director. The director may approve any such alternate, provided he finds that the proposed design is satisfactory and complies with the intent of this code, which is to provide an acceptable level of life safety for the general public.

B. The director may require sufficient evidence or proof be submitted to substantiate any claim that may be made regarding its use. If, in the opinion of the director, the evidence or proof is not sufficient to justify approval, the applicant may refer the entire matter to the board of building code appeals as stipulated elsewhere in this title. (Prior code § 11-1-10)

16.04.070 Issuance of permits and notices.

A. The director of codes administration shall issue or cause to be issued, all permits and notices required by Chapters 16.04 and 16.28 through 16.56 and shall keep or cause to be kept a record of all such permits and notices and all other business transactions of the department of codes administration. Such records of the department shall be open to public inspection during the regular business hours of the department.

B. The director of codes administration, or the director's designee, shall cause to be maintained and published online, on the official website for the Metropolitan Government of Nashville and Davidson County, an on-going compilation from which can be identified: (i) the number and type of demolition permits that were issued for residential property during the preceding calendar quarter ("housing"); and (ii) the number and type of residential building permits that were issued for residential property during the preceding calendar quarter ("housing units"); and, (iii) the number and type of residential occupancy permits (Certificates of Occupancy) that were issued for residential property during the preceding calendar quarter ("housing units") by the Metropolitan Government of Nashville and Davidson County. For multi-family zoning districts, this data shall include the number of units demolished or constructed. Data shall be entered not later than forty-five days after the issuance of each permit. (Ord. BL2024-182 § 1, 2024; Amdt. 1 to Ord. BL2018-1204 § 1, 2018; Ord. BL2018-1204 § 1, 2018; prior Code § 11-1-12)

16.04.080 Collections—Records.

The director of codes administration shall keep a permanent and accurate accounting of all permit fees and other money collected, the names of all persons upon whose account the same was paid and the date and amount thereof. (Prior code § 11-1-13)

16.04.090 Registration and bond required when.

A. It shall be the duty of every person who shall make contracts for the construction, erection, alteration, repair, removal or demolition of any building or structure or part thereof; or repair or replacement of any damage to a building or structure caused by insects or natural disasters; or to erect or construct any sign, billboard or similar structure, or to construct any public or private swimming pool; or to do or perform any work for which a permit is required (and every such person, making such contracts or subletting the same or any part thereof) to register with the department of codes administration and to post a permit bond in the amount set forth herein.

B. 1. For building permits under twenty-five thousand dollars, the bond amount shall be ten thousand dollars.

2. For all building permits of twenty-five thousand dollars and larger, the bond amount shall be forty thousand dollars.

C. The bond required by this section shall be a permit bond conditioned to conform to the requirements of this chapter and all applicable laws, ordinances, rules, and regulations of the metropolitan government relating to work which is performed by the principal pursuant to a permit issued under this bond, or for work performed by the principal for which a permit should have been obtained prior to commencement of such activity; and to

indemnify the metropolitan government and property owners against any and all loss suffered by them by reason of the failure of such contractor to comply with such laws, ordinances, rules and regulations. Such bond shall be continuous and may not be canceled without at least ten days' prior notice, in writing, to the director of codes administration. The liability of the surety shall continue to attach to work performed pursuant to any permit issued prior to the termination date of the bond even if the noncomplying act should occur after the termination date of the bond. The liability of the surety for any and all claims, suits or action under this bond shall not exceed the bond penalty. Regardless of the number of years this bond may remain in force, the liability of the surety shall not be cumulative and the aggregate liability of the surety for any and all claims, suits or actions under this bond shall not exceed the face amount. The bond shall be issued by a U.S. Treasury-listed corporate surety or a Tennessee domestic insurance company on forms provided by the department of codes administration.

D. It shall be the duty of every person, firm or corporation desiring to register with the department of codes administration under this section to secure the required contractor's privilege license for Davidson County.

E. Moving of Building or Structures. It shall be the duty of every person desiring to move any building or structure where such necessitates the transportation of such building or structure in public rights-of-way or on public streets, to register with the department of codes administration and to post good and sufficient bond in the amount of forty thousand dollars as required by Section 16.04.090(C); except that persons moving temporary construction office sheds, mobile or modular homes, house trailers, and storage buildings ten feet or less in width are not required to post bond.

F. It shall be the duty of every person desiring to move any building or structure where such necessitates the transportation of such building or structure in public rights-of-way or on public streets to furnish to the department of codes administration a certificate of general liability insurance issued by a Tennessee-licensed company which provides a minimum of three hundred thousand dollars per occurrence with combined single limit bodily injury and property damage coverage. The certificate of insurance may not be canceled without at least thirty days' prior notice, in writing, to the director of codes administration.

G. Bonds required by Sections 6.20.150, 6.52.140, 6.52.220, 13.20.030, 16.04.090 and 16.16.780 presently on file with the department of codes administration or the metropolitan clerk's office shall remain in effect until the 1995 anniversary date of the bond. Contractors with multiple trades may provide one forty-thousand dollar bond to meet the requirements of the above code sections. The new bond form will be required on the first 1995 renewal date. (Ord. 94-1226 § 5, 1994)

16.04.100 Certificate of occupancy—Issuance of electrical releases and temporary certificates.

A. To secure compliance with Chapters 16.04 and 16.28 through 16.56, the metropolitan government shall not provide nor permit another to provide utility services (such as water, sewer, electrical, or gas), either public or private, to any building or structure found to be in noncompliance of Chapters 16.04 and 16.28 through 16.56, until such building or structure has been brought into compliance, inspected and a final certificate of occupancy issued. This requirement shall not preclude the temporary use of utility services as may be necessary during construction, repair or rehabilitation of a structure. Provided, however, the director may authorize the issuance of an electrical release to the utility to connect electrical service in accordance with Section 16.36.030 for portions of a building safe for occupancy.

B. 1. It is further expressly provided that in the case of one-family and two-family dwellings and apartment/condominium complexes not exceeding three stories, a full electrical release shall, without exception, be issued after the frame inspection has been made and approved subject to completion of the following items:

a. Electrical service must be completed and properly grounded;

b. All exposed electrical wires are made safe (disconnected or installed in an approved junction box).

2. This request for full electrical release may be made on an oral or written basis by the electrical contractor, and the release shall be issued not more than two working days after the release unless an inspection of the intended premises reflects a noncompliance with paragraphs 1 and 2 of subsection B.

C. It is further expressly provided that in the case of one-family and two-family dwellings and apartment/condominium complexes not exceeding three stories, a temporary certificate of occupancy shall without exception be issued after the following conditions have been met:

1. The plumbing has been connected with the water system and sewer line or waste disposal system;

2. Safe conditions exist with regard to such items as smoke detectors are installed and operable; exits are complete; fire stopping is in place and ditches are covered.

D. Any such temporary certificate shall be valid for sixty days after the date of issue unless extended by the director. The director shall not unreasonably withhold any extensions unless for good cause. Should the building permittee obtaining a temporary certificate fail to secure a final certificate of occupancy within the time allowed, the director, in addition to other remedies available, and for good cause, may cause the utilities to be disconnected upon notice to the supplier to discontinue to furnish said service for this reason. The director shall not utilize his remedy to cause utilities to be disconnected unless ten days' written notice is given to the applicant. In case a contractor secures the temporary certificate, it shall be his responsibility to notify the purchaser or tenant of this condition of occupancy. (Prior code § 11-1-14)

16.04.110 Noncompliance—Stop work order.

A. Upon notice from the director of codes administration that work on any building or structure is being done contrary to the provisions of Chapters 16.04 and 16.28 through 16.56, or in a dangerous or unsafe manner; or upon notice that operation of any building or structure is being conducted contrary to the provisions of Section 17.16.250.E; such work or operation shall be immediately stopped. Such notice shall be in writing and shall be given to the owner of the property or to his agent or to the person doing the work or overseeing the operation, and shall state the conditions under which work or operation may be resumed. When an emergency exists, no written notice shall be required to be given by the director.

B. Such notice as required may be in the form of a placard posted by the inspector conspicuously on the building in which the work or operation is in progress. Removal of such notice or placard without the express consent of the director of codes administration or his designated agent, is a violation of this code. (Amdt. 1 to Ord. BL2017-626 § 1, 2017; Ord. BL2017-626 § 1, 2017; Ord. BL2016-257 § 1, 2016; prior code § 11-1-7)

16.04.120 Revocation of permits when.

The director of codes administration may revoke a permit or approval, issued under the provisions of Chapters 16.04 and 16.28 through 16.56, in case there has been any false statement or misrepresentation as to a material fact in the application or plans on which such permit or approval was based, or when it is determined that a permit has been issued in error. (Prior code § 11-1-8)

16.04.130 Construction standards.

A. During all phases of construction and specifically upon the final inspection, all construction performed under the jurisdiction of Chapters 16.04 and 16.28 through 16.56 shall be completed to conform to first class, conventional construction standards with respect to appearance and function. Materials incorporated into construction shall conform to the material standards specified in Chapters 16.04 and 16.28 through 16.56 and shall be fabricated and installed by craftsmen proficient in such construction.

B. General criteria which shall be required are as follows:

1. Floors shall be level, stable and tight and porch floors designed and constructed to drain away from walls;

2. Walls shall be plumb, square, tight and free from surface defects and undulations;

3. Trim shall be firmly attached, mitered at joints and free from surface defects and undulations;

4. Wall openings shall be tight, plumb, square and readily operable;

5. Ceiling shall be tightly attached, level and free from surface defects and undulations;

6. Roofs shall be tight and impervious to moisture;

7. Concrete floors and slabs shall have a steel trowel finish reasonably free of cracks and depressions. Slabs on earth shall be placed over a well-tamped subgrade and at least four inches of well-tamped, crushed stone, gravel or stone of three-quarter inch to one and one-half inch in size. (Prior code § 11-1-17.2)

16.04.140 Proof of compliance—Test reports.

The director of codes administration may require tests or test reports as proof of compliance with Chapters 16.04 and 16.28 through 16.56. Tests, if required, shall be made at the expense of the owner or agent, by an approved testing laboratory or agency. Copies of such test reports and the results of all such tests shall be kept on file in the office of the director of codes administration. (Prior code § 11-1-11)

16.04.150 Work on Sunday—Special permit required.

No contractor, builder, workman, laborer, or person other than a homeowner/resident working on his or her own residence shall do or perform any work or labor on any building or structure or part thereof or perform any work pursuant to a grading permit issued pursuant to Chapter 15.64 between the hours of twelve midnight Saturday night and twelve midnight Sunday night, except by special permission of the director of codes administration. Special permits may be issued only in

cases of emergency and shall be valid only for the date stamped thereon and shall be posted in a conspicuous place on the premises during the performance of such emergency work. The director shall notify the department of metropolitan police of all emergency permits issued. (Ord. BL2020-236 § 1, 2020; Ord. BL2012-261 § 20, 2012; prior code § 11-1-16)

16.04.160 Interference with director prohibited.

It is unlawful for any person, whether owner or occupant, to refuse to permit the entry of the director of codes administration or any of his duly authorized representatives or to interfere in any manner in the performance of the duties imposed upon the director. (Prior code § 11-1-5)

16.04.170 Conflicts with other ordinances.

A. In any case where a provision of Chapters 16.04 or 16.28 through 16.56 is found to be in conflict with a provision of any zoning, housing, fire, safety or health ordinance or code of the metropolitan government the provision which establishes the higher standard for the promotion and protection of the health and safety of the public shall prevail.

B. Where a provision of Chapters 16.04 or 16.28 through 16.56 is found to be in conflict with a provision of any other ordinance or code of the metropolitan government which establishes a lower standard for the promotion and protection of the health and safety of the public, the provision of Chapters 16.04 or 16.28 through 16.56 shall be deemed to prevail, and such other ordinances or codes are declared to be repealed to the extent that they may be found in conflict with such chapters. (Prior code § 11-1-17)

16.04.172 Violations—Penalties—Revocation of permits.

A. Whenever in this title, or in any rule, regulation or order promulgated by any officer or agency of the metropolitan government under authority duly vested in the officer or agency by this title, or if any act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or the doing of any act is required, or the failure to do any act is declared to be unlawful or an offense or a misdemeanor, where no specific penalty is provided therefor in this title, the violation of any such provision of this title or such rule, regulation or order, shall be punishable by fine in an amount not to exceed five hundred dollars. Each and every day such violation exists shall be deemed a separate offense. Penalties imposed on owners of property, where the principal use of the property is for an owner-occupied residential dwelling with an appraised value of not more than thirty thousand dollars, may not exceed one hundred fifty dollars.

B. In addition to any fine imposed for a violation of this title or any, rule, regulation, or order issued under authority granted under this title, the director may revoke permits issued to and refuse to issue new permits to not only the person or entity in violation but also any related person or entity, including any related person, partnership, limited partnership, joint venture, corporation, or any other type of business entity. An entity is deemed related when it is owned, controlled, or operated by common persons, unless credible evidence is presented that reasonably shows that the entity is no longer owned, controlled, or operated by such persons. Persons are deemed related when they are employed by or otherwise acting as an agent for a person or entity in violation. No revoked permits or new permits shall be released or issued to a person or entity in violation or to any related person or entity until all work performed in violation of this title is corrected to the director's satisfaction. (Ord. BL2025-1070 § 1, 2025; Ord. 95-1329 § 12, 1995)

16.04.175 [Enforcement of county-wide emergency health orders.]

Notwithstanding any other provision of this title, it is a condition of any permit or work authorization issued pursuant to the authority granted herein, including those issued prior to the effective date hereof, that the permittee and its employees abide by applicable laws, rules, regulations and orders, including without limitation those emergency orders issued by the chief medical director in connection with a declared state of emergency in all or part of Davidson County. Employees of a department that has authorized work or issued a permit pursuant to this title may order the cessation of work or specific activities, or the suspension of a permit, on any work site operating under such permit, for a violation of an emergency order.

Notice of the stop work order shall be in writing and shall be given to the owner of the property or to his agent or to the person in charge of the work or overseeing the operation. When, in the opinion of the director of the department that authorized work or issued a permit, or the director's agent, that an emergency exists, a written stop work order shall not be required, and in such instances, oral notice to the owner, his agent or the person in charge of the work shall have the same force and effect as a written order. Any violation of the stop work order shall be assessed as a civil penalty at the rate of fifty dollars per day. In addition, where a violation exists, the director of the department or the director's agent may request that utility service be curtailed until

the violation is corrected or abated. Appeals from the stop work order may be made to the relevant board or commission that oversees the authorization of the work or issuance of the permit. (Ord. BL2020-421 § 1, 2020)

Editor's note—Ord. BL2020-421 § 1, passed Sept. 15, 2020, set out provisions intended for use as § 16.04.180. At the editor's discretion, to prevent duplication of section numbers, these provisions have been included as § 16.04.175.

16.04.177 [Annual adjustment of fees.]

The rates set forth in Chapters 16.12, 16.16, 16.20, and 16.28 shall be adjusted on July 1, 2022, and on July 1 of each succeeding year by the greater of (a) a percentage equal to the percentage change in the CPI Urban Index (CPI-U) over the preceding year and (b) three percent, unless the change in the CPI-U is negative, in which case there shall be no change for that fiscal year. Notice of the annual adjustments to begin on July 1, 2022, shall be provided to each member of the metropolitan council and published on the metropolitan government's website at least thirty days before an adjustment goes into effect. Not later than the third anniversary of the effective date of this ordinance, and at least every three years thereafter, the department shall engage a qualified consultant to perform a rate study and analysis to confirm the department's costs in providing services and determine whether the rates then in effect are fair and reasonable. (Ord. BL2022-1215 § 1, 2022)

Article II. Fire Zone Map

16.04.180 Adopted by reference.

The fire district map of the Metropolitan Government of Nashville/Davidson County, a copy of which is on file with the metropolitan clerk, is adopted by reference, as fully as though copied in this chapter, as the official fire district map of the metropolitan government. Such map, together with the boundaries set forth therein designating the fire district, is expressly made a part of this code. The district shall apply to all construction therein. (Ord. 98-1445 § 75, 1998)

Article III. Specific Structures and Uses

16.04.190 Demolition—Removal of debris required.

Every person moving, repairing or demolishing a building or structure and removing debris therefrom shall cause all such debris to be thoroughly dampened with water or covered to prevent the spread of such debris or dust to adjacent properties or streets. In the case of demolition, it shall be the responsibility of the person demolishing a building or structure to remove from the premises all debris resulting from such demolition and to fill any below-grade area to grade level. The director may, at his discretion, allow suitable protective fencing around the below-grade area in lieu of the full requirement. (Prior code § 11-1-17.3)

16.04.200 Reserved.

Editor's note—Ord. BL2025-1048 § 1, passed Oct. 21, 2025, repealed § 16.04.200, which pertained to fences and derived from Ord. BL2021-680 § 1, 2021; Amdt. 1 to Ord. BL2019-30 § 1, 2020; Ord. BL2019-30 § 1, 2020; Amdt. 1 to Ord. BL2017-688 § 1, 2017; Ord. BL2017-688 § 1, 2017; Amdt. 1 to Ord. BL2005-668, 2005; Ord. BL2005-668 § 1, 2005; prior code § 11-1-17.4. The user's attention is directed to § 16.24.330.

16.04.210 Signs.

A. Signs erected, constructed, located, placed or otherwise displayed within the area of jurisdiction of the metropolitan government require a permit under the provisions of this code and the Zoning Ordinance.

B. Any sign which has become dilapidated, unsafe, structurally unsound, hazardous, severely weathered, etc., are declared to be in violation of this code. Any such sign shall be removed or repaired upon notice from the director. Included in the above shall be any sign advertising a business, use or commodity available on the premises which has relocated, discontinued operation or become unavailable on said premises.

C. Before issuing a permit for a sign as required herein, the applicant must:

1. Have received a state permit for a sign where a state permit is required;

2. Submit a schematic drawing by the applicant showing the proximity of the proposed sign to other signs, and a certified stamped engineer's drawing assuring the stability of a sign in conformance with standard building codes.

D. The codes department shall notify the property owner, advertiser, and advertising sign company of any illegal signs which are not in compliance with the Zoning Ordinance. The notification shall be sent by certified letter stating the property owner, advertiser, or advertising sign company has ten days within which to conform the sign to all applicable Metro regulations. The codes department shall not be required to send a certified letter to the advertiser unless the advertiser is the owner or lessee of the sign. (Prior code § 11-1-17.6)

16.04.220 Street numbers—Display required when.

All residences, buildings, structures and other facilities having mail and delivery services have their street

numbers displayed conspicuously for view from the public streets. It shall be sufficient to have the street numbers on the mailbox for said structures if the mailbox is adjacent to the right-of-way. (Prior code § 11-1-17.7)

16.04.230 Trailers and mobile homes.

Every trailer, mobile home, modular building or other structure located on property under the jurisdiction of this code and with a duly issued building permit and zoning permit, shall be securely and completely underpinned and skirted with an approved material which is impervious to the weather and rodents. (Prior code § 11-1-17.5)

16.04.240 Reserved.

Editor's note—Ord. BL2024-346 § 1, adopted July 16, 2024, repealed § 16.04.240, which pertained to single-family home entrances and derived from Amdt. 1 to Ord. BL2004-345, 2005; Ord. BL2004-345 § 1, 2005.

Chapter 16.08

BUILDING CODES

Sections:

16.08.010	**Adoption by reference.**
16.08.012	**Amendments to the 2024 International Building Code.**
16.08.014	**Amendments to the 2024 International Residential Code for One- and Two-Family Dwellings.**
16.08.016	**Amendments to the International Energy Conservation Code.**

16.08.010 Adoption by reference.

The following sections and appendices are adopted and incorporated into this chapter as the technical section of the building code of the metropolitan government, by reference, as fully as though copied into this code, except as have been or may be hereafter amended herein:

A. 2024 Edition of the International Building Code, including Appendices C & D of the International Building Code, as published by the International Code Council.

B. 2017 Edition of the International ICC/ANSI A117.1 Accessible and Usable Buildings and Facilities.

C. 2024 International Residential Code for One- and Two-Family Dwellings published by the International Code Council, as amended in this chapter, and Appendices BA, BD, BE, BF, and CD of the International Residential Code for One- and Two-Family Dwellings.

D. 2024 Edition of the International Energy Conservation Code published by the International Code Council, as amended in this chapter. (Ord. BL2025-898 § 1, 2025; Amdt. 1 to Ord. BL2020-458 § 1, 2020; Ord. BL2020-458 § 1, 2020; Ord. BL2015-1145 § 6, 2015; Ord. BL2007-1390 §§ 6, 8, 2007; Ord. BL2007-1373 § 1, 2007; Ord. BL2005-796 § 3, 2005; Ord. BL2002-1142 §§ 12, 13, 2002; Ord. BL2001-703 § 1, 2001; Ord. 98-1445 §§ 22, 23, 1998; Ord. 96-562 §§ 1, 2, 1996; Ord. 95-1487 §§ 1, 2, 3, 1995; Ord. 93-843 § 1, 1994; Ord. 92-118 §§ 1, 2, 1992; Ord. 89-1003 § 1, 1989; prior code § 11-1-29)

16.08.012 Amendments to the 2024 International Building Code.

The following amendments, deletions or additions to the 2024 Edition of the International Building Code are adopted by reference as fully as though copied into said Building Code and thereby made a part of the Building Code.

A. Section 101.1 of the 2024 Edition of the International Building Code is hereby amended by deleting Section 101.1 and substituting the following:

These regulations shall be known as the Building Code of Metropolitan Nashville and Davidson County, hereinafter referred to as "this code."

B. The 2024 Edition of the International Building Code is hereby amended by deleting Sections 102 through 116.5 in their entirety.

C. Section 201 of the 2024 Edition of the International Building Code is hereby amended by adding the following new Section 201.5 to Section 201:

201.5 Interchangeability with The International Codes. The International Property Maintenance Code shall be construed to mean the Property Standards Code of the Metropolitan Government. The International Private Sewage Disposal Code shall be construed to mean the Subsurface Sewage Disposal Systems Code of the Metropolitan Government. The ICC Electrical Code shall be construed to mean the National Electrical Code.

D. Section 202 of the 2024 Edition of the International Building Code is hereby amended by adding the following new definitions:

BED AND BREAKFAST HOMESTAY — means a private home, inn, or other unique residential facility located in a structure of historical significance as defined in Tennessee Code Annotated Section 68-14-503(3) offering bed and breakfast accommodations and one (1) daily meal and having less than four (4) guest rooms furnished for pay, with guests staying not more than fourteen (14) days, and where the innkeeper resides on the premises or property, or immediately adjacent to it. Guest rooms shall be established and maintained distinct and separate from the innkeeper's quarters.

BREEZEWAY — a covered connector between two buildings or structures, open at each end but less than 50 percent open, located at, above, or below grade level, that may be used as a means of egress from a building or structure.

BOARD — shall mean the Metropolitan Board of Fire and Building Code Appeals.

BUILDING OFFICIAL — shall mean the Director of the Metropolitan Department of Codes Administration, his deputy or duly authorized representative.

CODE OFFICIAL - shall mean the Director of the Metropolitan Department of Codes Administration, his deputy or duly authorized representative.

DIRECTOR — shall mean the Director of the Metropolitan Department of Codes Administration, his deputy or duly authorized representative.

NORMAL MAINTENANCE REPAIRS — shall be defined as repairs to an existing building or structure, including but not limited to exterior and interior painting, papering, glazing of windows and doors, floor finishing, minor repairs to chimneys, stairs, porches, underpinning, and repairs to an existing roof not to exceed 33 percent of the roof area.

TEMPORARY — shall mean not more than 90 calendar days.

E. Section 310.4, R-3 of the 2024 Edition of the International Building Code is hereby amended by adding the following to Section 310.4:

Bed and breakfast homestays are classified as R3.

F. Section 423 Storm Shelters of the 2024 Edition of the International Building Code is hereby amended by deleting Section 423 in its entirety.

G. Section 502.1 of the 2024 Edition of the International Building Code is hereby amended by deleting Section 502.1 and substituting the following:

502.1. Premises Identification. All buildings and structures within Metropolitan Nashville and Davidson County shall have approved address numbers posted in accordance with the following:

1. Residences are to have their numbers at least three (3) inches in size, on a contrasting background, and in a position to be plainly visible and legible from the street or road fronting the property. The numbers may be attached to the residence or the mailbox, if the mailbox is next to the street.

2. Numbers posted on the outside of nonresidential buildings must be six inches, or larger, on a contrasting background, and in a position to be plainly visible and legible from the street or road fronting the premises. Numbers posted on interior doors or spaces (such as a lease space in a mall) must be at least three inches in size.

3. Multifamily buildings shall have their numbers displayed to be plainly visible and legible, on a contrasting background, and a minimum size of six inches in height. Identifying numbers, at least three inches in height, shall also be posted on or at the doors of individual dwelling units.

H. Sections 907.2.11.2 through 907.2.11.4 of the 2024 Edition of the International Building Code are hereby amended by deleting Sections 907.2.11.2 through 907.2.11.4 and substituting the following:

907.2.11.2 Groups R-2, R-3, R-4 and I-1. Single-or multiple-station smoke alarms shall be installed and maintained in Groups R-2, R-3, R-4 and I-1, regardless of occupant load in the following locations:

1. On the ceiling or wall outside of each separate sleeping area in the immediate vicinity of bedrooms.

2. In each room used for sleeping purposes.

3. In each story within a dwelling unit, including basements, garages and cellars but not including crawl spaces and uninhabitable attics. In dwellings or dwelling units with split levels and without an intervening door between the adjacent levels, a smoke alarm installed on the upper level shall suffice for the adjacent lower level provided that the lower level is less than one full story below the upper level.

Exception: Heat detectors may be substituted for smoke detectors installed in cellars and attached garages.

907.2.11.2.1 Additions, alterations or repairs to Group R. Where an addition, alteration or repair to an individual dwelling unit or guestroom in Group R requires a permit, smoke alarms shall be installed within that individual dwelling unit or guestroom in accordance with this section. Where one or more sleeping rooms are added or created in an existing Group R, smoke alarms shall be installed in accordance with this section.

Exception: Repairs to the exterior surfaces of occupancies in Group R are exempt from the requirements of this section.

I. Section 1006.3.4 of the 2024 Edition of the International Building Code is hereby amended by deleting Section 1006.3.4 Single Exits in its entirety and substituting the following:

1006.3.4 Single Exits. A single exit or access to a single exit shall be permitted from any story or occupied roof where one of the following conditions exists:

1. The occupant load, number of dwelling units and exit access travel distance within the portion of the building served by the single exit do not exceed the values in Table 1006.3.4(1) or 1006.3.4(2).

2. Rooms, areas and spaces complying with Section 1006.2.1 with exits that discharge directly to the exterior at the level of exit discharge, are permitted to have one exit or access to a single exit.

3. Parking garages where vehicles are mechanically parked shall be permitted to have one exit or access to a single exit.

4. Group R-3 and R-4 occupancies shall be permitted to have one exit or access to a single exit.

5. Individual single-story or multistory dwelling units shall be permitted to have a single exit

or access to a single exit from the dwelling unit provided that both of the following criteria are met:

1. The dwelling unit complies with Section 1006.2.1 as a space with one means of egress.

2. Either the exit from the dwelling unit discharges directly to the exterior at the level of exit discharge, or the exit access outside the dwelling unit's entrance door provides access to not less than two approved independent exits.

6. Not more than six stories of Group R-2 occupancy are permitted to be served by an interior or exterior single exit under the following conditions:

1. The building has not more than six stories above grade plane.

2. There shall be no more than four dwelling units on any floor.

3. The building does not contain a boarding house.

4. The building shall also be equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1. NFPA 13 sprinklers shall be used in all habitable spaces in each dwelling unit.

5. There shall be no more than one single exit stairway condition on the same parcel. Single exit stair buildings will be restricted to any location within the UZO district.

6. An exterior stairway or interior exit stairway shall be provided with a minimum 2-hour rated fire separation. The interior exit stairway, including any related exit passageway, shall be pressurized in accordance with Section 909.20.6.

7. A 1-hour rated corridor shall separate each dwelling unit entry/exit door from the door to an interior exit stairway, including any related exit passageway, on each floor. Dwelling unit doors shall be 45-minute fire-resistance rated doors. Dwelling Unit Doors shall not open directly into an interior exit stairway. Dwelling unit doors are permitted to open directly into an exterior stairway.

8. There shall be no more than 20 feet (6096 mm) of travel the exit stairway from the entry/exit door of any dwelling unit.

9. Travel distance measured in accordance with Section 1017 shall not exceed 125 feet.

10. Other occupancies are permitted in the same building provided they comply with all the requirements of this code. Other occupancies shall not communicate with the Group R occupancy portion of the building or with the single-exit stairway.

Exception: Parking garages and occupied roofs accessory to the Group R occupancy are permitted to communicate with the exit stairway. Each of these components will be considered one of the levels in the building.

11. The exit serving the Group R occupancy shall not discharge through any other occupancy, including an accessory parking garage.

12. There shall be no openings within 10 feet (3048 mm) of unprotected openings into the stairway other than required exit doors having a one-hour fire-resistance rating.

13. The stairway shall be a minimum of 54" clear for egress and ingress.

The area under the lowest stair flight shall be permanently enclosed without any allowable storage under the stair.

J. Section 1015.4 of the 2024 Edition of the International Building Code is hereby amended by adding the following exception number 7.

7. From the walking surface to the first element, the guard shall not have openings that allow the passage of a sphere 2 inches in diameter.

K. The 2024 Edition of the International Building Code is hereby amended by deleting Section 1612-Flood Loads.

L. Section 2902.3.4 of the 2024 Edition of the International Building Code is hereby amended by adding the following to the end of Section 2902.3.4.

Restaurants other than food tenants in the food court shall have the required facilities installed within their tenant space.

M. Section 3103 of the 2024 Edition of the International Building Code is hereby amended by deleting Section 3103 and substituting the following:

3103 TEMPORARY STRUCTURES

3103.1 General. The provisions of this section shall apply to structures erected for a period of 90 days or less. Tents and other membrane structures erected for a period of 90 days or less shall comply with the

Metropolitan Fire Code. Structures erected for a longer period of time shall comply with applicable sections of this code.

Exception: Provisions of the Metropolitan Fire Code shall apply to tents and membrane structures erected for a period of 90 days or less.

3103.1.1 Permit required. Temporary structures that cover an area in excess of 120 square feet (11.16 m2), including connecting areas or spaces with a common means of egress or entrance which are used or intended to be used for the gathering together of ten or more persons, shall not be erected, operated or maintained for any purpose without obtaining a permit from the building official.

N. Section 3202.3.1 of the 2024 Edition of the International Building Code is hereby amended by deleting Section 3202.3.1 and substituting the following:

3202.3.1 Awnings, canopies, marquees and signs. Awnings, canopies, marquees and signs shall be constructed so as to support applicable loads as specified in Chapter 16. Awnings, canopies, marquees and signs with less than 15 feet (4572 mm) clearance above the sidewalk shall not extend into or occupy more than two- thirds the width of the sidewalk measured from the building.

3202.3.1.1 Support. Fixed awnings, marquees, signs or canopies shall be entirely supported from the building.

O. Section 3202.4 of the 2024 Edition of the International Building Code is hereby amended by deleting Section 3202.4 and substituting the following:

3202.4 Temporary encroachments. Where allowed by the local authority having jurisdiction, vestibules and storm enclosures shall not be erected for a period of time exceeding 90 days in any one year and shall not encroach more than 3 feet (914 mm) nor more than one-fourth of the width of the sidewalk beyond the street lot line. Temporary entrance awnings shall be erected with a minimum clearance of 8 feet (2438 mm) to the lowest portion of the hood or awning where supported on removable steel or other approved noncombustible support from the building.

P. Section D101.2 of the 2024 Edition of the International Building Code is hereby amended by deleting Section D101.2 and substituting the following:

D101.2 The Fire District shall include such territory or portion thereof as established by the official Fire Zone Map of the Metropolitan Government of Nashville and Davidson County, Tennessee. (Ord. BL2025-898 § 1, 2025; Ord. BL2024-304 § 1, 2024; Ord. BL2024-182 § 2, 2024; Amdt. 1 to Ord. BL2023-1994 § 1, 2023; Ord. BL2023-1994 § 1, 2023; Ord. BL2020-458 § 1, 2020; Ord. BL2019-95 § 1, 2020; Amdt. 2 to Ord. BL2016-238 § 3, 2016; Ord. BL2016-238 §§ 3, 4, 2016; Ord. BL2015-1145 § 7, 2015; Amdt. 1 to Ord. BL2010-622 § 1; Ord. BL2010-622 § 1, 2010; Ord. BL2007-1390 § 7, 2007; Ord. BL2002-1142 § 14, 2002; Ord. BL2001-703 § 10, 2001; Ord. 98-1445 §§ 24—44, 1998; Ord. 96-562 §§ 3—8, 1996; Ord. 95-1542 § 2, 1995; Ord. 95-1487 §§ 4—19, 1995; Ord. 94-1113 §§ 3 and 4, 1994; Ord. 92-118 § 3, 1992)

16.08.014 Amendments to the 2024 International Residential Code for One- and Two-Family Dwellings.

The following amendments, deletions, or additions to the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings are adopted by reference, as fully as though copied into such Dwelling Code, and thereby made a part of the Dwelling Code.

A. Section R101.1 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section R101.1 and substituting the following:

R101.1 Title. These provisions shall be known as the Residential Code for One- and Two-Family Dwellings of Metro Nashville, Tennessee, and shall be cited as such and will be referred to herein as "this code".

B. Sections R102.1 through R106.5 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings are hereby amended by deleting Sections R102.1 through R106.5 in their entirety.

C. Section R107.1 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting R107.1 Section and substituting the following:

R107.1 General. The building official is authorized to issue a permit for temporary structures and temporary uses. Such permits shall be limited as to time of service but shall not be permitted for more than 90 days. The building official is authorized to grant extensions for demonstrated cause.

D. Sections R108.1 through R114.4 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Sections R108.1 through 114.4 in their entirety.

E. Section R202 of the 2024 Edition of the International Residential Code for One-and Two-Family Dwellings is hereby amended by adding the following new definitions to Section R202.

BED AND BREAKFAST HOMESTAY—means a private home, inn or other unique residential facility located in a structure of historical significance as

defined in Tennessee Code Annotated Section 68-14-503(3) offering bed and breakfast accommodations and one (1) daily meal and having less than four (4) guest rooms furnished for pay, with guest staying not more than fourteen (14) days, and where the innkeeper resides on the premises or property, or immediately adjacent to it. Guest rooms shall be established and maintained distinct and separate from the innkeeper's quarters.

BOARD—shall mean the Metropolitan Board of Fire and Building Code Appeals.

BUILDING OFFICIAL—shall mean the Director of the Metropolitan Department of Codes Administration.

DIRECTOR—shall mean the Director of the Metropolitan Department of Codes Administration, his deputy or duly authorized representative.

NORMAL MAINTENANCE REPAIRS—shall be defined as repairs to an existing building or structure, including but not limited to exterior and interior painting, papering, glazing of windows and doors, floor finishing, minor repairs to chimneys, stairs, porches, underpinning, and repairs to an existing roof.

TEMPORARY—shall mean not more than 90 calendar days.

F. Table R301.2 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Table R301.2 and substituting the following:

Ground Snow Load (lbs.)		10
Wind Design	Speed (mph)	115
	Topographic effects	No
	Special Wind Region	No
Windborne Debris Zone		No
Seismic Design Category		C
Subject to Damage From:	Weathering	Severe
	Frost line depth (inches)	12"
	Termite	Heavy
Winter Design Temp (Degrees)		14° F
Ice Barrier Underlayment Required		No
Flood Hazards		In accordance with adopted Storm Water ordinance
Air Freezing Index		366
Mean Annual Temp		59° F
Manual J Design Criteria Elevation (feet)		640
Latitude (Degrees North)		35
Winter Heating		14
Summer Cooling		94
Altitude Correction Factor		*
Indoor Design Temperature		70
Design Temperature Cooling		75
Heating Temperature Difference		*
Cooling Temperature Difference		*
Wind Velocity Cooling		*
Coincident Wet Bulb		74
Daily Range		M
Winter Humidity		*
Summer Humidity		*

*This value to be determined using Manual J Design criteria.

G. Section R302.13 of the 2024 Edition of the International Residential Code for One- and two-Family Dwellings is hereby amended by deleting Section R302.13 and substituting the following:

R302.13 Fire protection of floors. Floor assemblies, not required elsewhere in this code to be fire-resistance rated, shall be provided with a 1/2-inch (12.7 mm) gypsum wallboard membrane, 5/8-inch (16 mm) wood structural panel membrane, or equivalent on the underside of the floor framing member. Penetrations or openings for ducts, vents, electrical outlets, lighting, devices, luminaires, wires, speakers, drainage, piping and similar openings or penetrations shall be permitted.

Exceptions:

1. Floor assemblies located directly over a space protected by an automatic sprinkler system in accordance with Section P2904, NFPA13D, or another approved equivalent sprinkler system.

2. Floor assemblies located directly over a crawl space not intended for storage.

3. Portions of floor assemblies can be unprotected when complying with the following:

3.1. The aggregate area of the unprotected portions shall not exceed 80 square feet per story.

3.2. Fire blocking in accordance with Section R302.11.1 shall be installed along the perimeter of the unprotected portion to separate the unprotected portion from the remainder of the floor assembly.

4. Wood floor assemblies using dimension lumber or structural composite lumber equal to or greater than 2-inch by 10-inch (50.8 mm by 254 mm) nominal dimension, or other approved floor assemblies demonstrating equivalent fire performance.

H. Sections 306.1 through 306.3.10 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Sections R306.1 through R306.3.10 in their entirety.

I. Section R308 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section R308 and substituting the following:

R308 Address Identification. All buildings and structures within Metropolitan Nashville and Davidson County shall have approved address numbers posted in accordance with following: Residences are to have their numbers at least three (3) inches in size, on a contrasting background, and in a position to be plainly visible and legible from the street or road fronting the property. The numbers may be attached to the residence or the mailbox, if the mailbox is next to the street.

J. Section R309.1 of the 2024 Edition of the International Residential Code for One-and Two-Family Dwellings is hereby amended by creating a new Section R309.1:

R309.1 Townhouse automatic fire sprinkler systems. A townhouse shall be considered a separate building with independent exterior walls and shall be separated by a two-hour fire-resistance-rated wall assembly. A townhouse shall be built according to local and statewide adopted building codes; provided, however, a fire sprinkler system shall not be required for a townhouse. For the purposes of this Code, "townhouse" means a single family dwelling unit constructed in a group of three (3) or more attached units that extends from foundation to roof, not more than three (3) stories in height, with a separate means of egress, and an open space or public way on at least two (2) sides.

K. Section R309.2 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section R309.2 in its entirety.

L. Section 310.2.2 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by adding the following new exception:

Exception 3. The interconnection and hardwiring of smoke alarms in existing areas shall not be required where the alterations or repairs do not result in the removal of interior walls or ceiling finishes exposing the structure.

M. Chapter 3 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by adding the following new section R333 HOUSE MOVING:

SECTION R333.1

Any person desiring to move any house, building, or structure shall comply with all of the provisions set forth in Section 16.28.175 of the Metropolitan Code and other provisions of this Code.

N. Section R403.1 of the 2024 Edition of the International Residential Code for One- and two-Family Dwellings is hereby amended by deleting Section R403.1 and substituting the following:

R403.1 General. All exterior walls shall be supported on continuous solid or fully grouted masonry or concrete footings, wood foundations, or other approved structural systems which shall be of sufficient design to accommodate all loads according to Section R301 and to transmit the resulting loads to the soil within the limitations as determined from the character of the soil. Footings shall be supported on undisturbed natural soils or engineered fill. All concrete footing shall have minimum bottom reinforcement. Minimum reinforcement shall be 2-#4's continuous and shall be located a minimum of 3 inches clear from the bottom and side of the footing. Concrete footings shall be designed and constructed in accordance with the provisions of Section R403 or in accordance with ACI 332.

O. Chapter 11 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by:

1. Deleting Table N1102.1.2 Maximum Assembly U-Factors and Fenestration Requirements, and Table 1102.1.3 Insulation Minimum R-values and Fenestration Requirements by Component in their entirety and replacing them with Table N1102.1 Insulation and Fenestration Requirements by Component and Table N1102.1.2 Equivalent U-Factors from the 2009 International Residential Code.

2. Deleting Section N1102.5.1.2 Air Leakage Testing in its entirety and replacing it with Section 1102.4.2.1 Testing Option and Section N1102.4.2.2 Visual Inspection from the 2009 International Residential Code.

P. Section N1103.5.2 Hot Water Pipe Insulation is hereby deleted in its entirety and substituting the following:

Section N1103.5.2 Hot Water Pipe Insulation. Insulation for service hot water piping shall comply with Table N1103.5.2 and shall be applied to the following:

1. Piping ¾ inch and larger in nominal diameter, unless located in a conditioned space.
2. Piping located outside the conditioned space.
3. Piping from the water heater to a distribution manifold.
4. Piping under a floor slab, unless sleeved with a minimum of one pipe size larger than the pipe being served.
5. Buried piping, unless sleeved with a minimum of one pipe size larger than the pipe being served.

6. Supply and return piping in circulating hot water systems.

Exception: Cold water returns in demand recirculation water systems. (Ord. BL2025-898 § 1, 2025; Ord. BL2024-182 § 3, 2024; Ord. BL2023-2009 § 1, 2023; Ord. BL2020-458 § 1, 2020; Ord. BL2015-1145 § 8, 2015; Ord. BL2010-613 § 1, 2010; Ord. BL2007-1373 § 2, 2007; Ord. BL2001-703 § 2, 2001; Ord. 98-1445 §§ 45—47, 1998; Ord. 96-562 §§ 9—25, 1996; Ord. 95-1542 § 3, 1995; Ord. 95-1487 §§ 20—27, 1995; Ord. 92-118 § 4, 1992)

16.08.016 Amendments to the International Energy Conservation Code.

The following amendments, deletions or additions to the 2024 Edition of the International Energy Conservation Code are adopted by reference as fully as though copied into said Dwelling Code and thereby made a part of the Dwelling Code.

A. Section 101.1 of the 2024 Edition of the International Energy Conservation Code is hereby amended by deleting Section 101.1 and adding a new Section 101.1.

101.1 Title. This code shall be known as the International Energy Conservation such. It is referred to herein as "this code."

B. The 2024 Edition of the International Energy Conservation Code is hereby amended so that it meets and does not exceed the 2018 International Energy Conservation Code standards as adopted by the State of Tennessee, per Tenn. Comp. R. & Regs. 0780-02-23-.02(1)(b). (Ord. BL2025-898 § 1, 2025; Ord. BL2023-2009 § 2, 2023; Ord. BL2020-458 § 1, 2020; Ord. BL2015-1145 § 9, 2015; Ord. BL2007-1390 § 9, 2007; Ord. BL2002-1142 § 15, 2002; Ord. 96-562 §§ 26, 27, 1996; Ord. 95-1487 § 28, 1995)

Chapter 16.12

PLUMBING CODE

Sections:

Article I. General Regulations

16.12.010 Purpose—Remedial.
16.12.020 Scope.
16.12.030 Proper maintenance—Owner responsibility.
16.12.040 Enforcement—Promulgation of regulations.
16.12.050 Additional requirements—Authority of director.
16.12.060 Conflicts with other ordinances.
16.12.070 Inspection records—Open to public.
16.12.080 Right of entry.
16.12.090 Noncompliance—Stop work orders.
16.12.100 Unsafe installations—Abatement.
16.12.110 Revocation of permits—Fees not refunded.

Article II. Plumbing Code

16.12.120 Adoption by reference.
16.12.130 Amendments to the International Plumbing Code.
16.12.140 Amendments to the Plumbing Sections of the 2024 International Residential Code for One- and Two-Family Dwellings.

Article III. (Reserved)

Article IV. Plumbing Permits

16.12.150 Required—Exceptions.
16.12.160 Application.
16.12.170 Qualifications.
16.12.180 Plans and specifications—Requirements.
16.12.190 Applications—Timely action upon.
16.12.200 Applications—Examination by director.
16.12.210 Reviewed plans—Labeled—Copy at jobsite.
16.12.220 Fee schedule—Plumbing permits and fixture classifications.
16.12.230 Failure to obtain permit—Fees tripled—Exception.
16.12.240 Fees—Refunds.
16.12.250 Issuance.
16.12.260 Permit denied.
16.12.270 Interpretation—Limit of authority.
16.12.280 Nontransferability.
16.12.290 Expiration—Extensions.
16.12.295 Change in contractor—Reissuance of permit—Fees.

Article V. Inspections

16.12.300 Required when.
16.12.310 Inspection test—Permittee's responsibility.
16.12.320 Notice to director that work is ready for inspection.
16.12.330 Materials and labor for tests.
16.12.340 Testing of plumbing and drainage systems required.
16.12.350 Testing—Procedure for water test.
16.12.360 Testing—Procedure for air test.
16.12.370 Testing—Final test—Additional tests.
16.12.380 Testing of existing plumbing.
16.12.390 Testing of interior leaders and downspouts.
16.12.400 Testing water supply systems.
16.12.410 Notice of rejection.
16.12.420 Reinspection required—Fee.
16.12.430 Notice of approval—When—Posted.
16.12.440 Certificate of approval—Issuance.
16.12.450 Covering work prior to approval prohibited.

Article I. General Regulations

16.12.010 Purpose—Remedial.

This chapter is declared to be remedial and shall be construed to secure the beneficial interests and purposes thereof, which are health, sanitation, general public safety and welfare, by regulation of all plumbing, plumbing installations, plumbing systems and plumbing system alterations, repairs and maintenance. (Prior code § 33-1-1)

16.12.020 Scope.

The provisions of this chapter shall apply to every plumbing installation and plumbing system, both new and existing, including, but not limited to, all alterations,

repairs, replacement and maintenance and to all plumbing devices, equipment, appliances, fixtures, fittings and appurtenances within the metropolitan government area.

Nothing in this chapter shall be construed to prohibit, and no permits shall be required for, normal maintenance and repairs to an existing plumbing system. (Ord. 90-1253 § 7, 1990; prior code § 33-1-2)

16.12.030 Proper maintenance—Owner responsibility.

A. All plumbing, plumbing installations and plumbing systems both new and existing, and all parts thereof and appurtenances thereto, shall be installed and maintained, as required by this chapter, in a safe and sanitary condition.

B. All devices, equipment and safeguards required by this chapter shall be installed and properly maintained in a safe and sanitary manner and in good working order.

C. The owner or his designated agent shall be held responsible for the proper maintenance of all plumbing, installations and plumbing systems. (Prior code § 33-1-3)

16.12.040 Enforcement—Promulgation of regulations.

A. The director of codes administration shall have the power and his duty shall be to enforce, in the manner herein provided, all laws, ordinances, rules and regulations relating to plumbing, plumbing installations and plumbing systems as set forth in this chapter and any amendments thereto, and to promulgate such rules and regulations as may be deemed necessary for the effective enforcement of this chapter.

B. Such rules and regulations as may be promulgated by the director pursuant to this section shall be approved by the board of plumbing examiners and appeals, shall be approved by the department of law as to form and legality and shall become effective upon written approval of the mayor. (Prior code § 33-1-5)

16.12.050 Additional requirements—Authority of director.

Any requirement deemed necessary for the safety, strength or stability of an existing or proposed plumbing installation or plumbing system or for the health, safety or welfare of the occupants of any building or structure, not specifically covered by the provisions of this chapter, shall be determined by the director of codes administration, subject to an appeal to the board of plumbing examiners and appeals. (Prior code § 33-1-12)

16.12.060 Conflicts with other ordinances.

A. In any case where a provision of this chapter is found to be in conflict with a provision of any zoning, housing, building, fire, safety or health ordinance or code of the metropolitan government, existing on January 1, 1966, the provision which establishes the higher standard for the promotion and protection of the health and safety of the public shall prevail.

B. Where a provision of this chapter is found to be in conflict with a provision of any other ordinance or code of the metropolitan government, existing on January 1, 1966, which establishes a lower standard for the promotion and protection of the health and safety of the public, the provisions of this chapter shall be deemed to prevail, and such other ordinances and codes are declared to be repealed to the extent that they may be found in conflict with the plumbing code. (Prior code § 33-1-14)

16.12.070 Inspection records—Open to public.

The director of codes administration shall keep or cause to be kept a record of the business activities of the plumbing inspection section. Such records shall be open for public inspection during the normal office hours of the department of codes administration. (Prior code § 33-1-6)

16.12.080 Right of entry.

The director of codes administration shall enforce the provisions of this chapter, and he or his duly authorized representative may enter, with the consent of the owner or occupant or with a valid search warrant, and upon presentation of proper identification, any building, structure or premises within the metropolitan government area to perform any duty or responsibility imposed upon him by this chapter. (Prior code § 33-1-7)

16.12.090 Noncompliance—Stop work orders.

A. When it is found that any plumbing installation is being made or that any plumbing devices, equipment or fixtures required by this chapter are being installed contrary to the provisions of this chapter, or that such plumbing installations, devices, equipment or fixtures installed are dangerous or unsafe, the director of codes administration shall issue or cause to be issued a stop work order.

B. Such stop work order shall be in writing and shall be served upon the owner of such property, his duly authorized agent or the person responsible for such work. A copy of the stop work order shall be posted in a conspicuous place upon the premises and it shall be unlawful for any person to remove such order or to

perform any work on the plumbing installation, device, equipment or fixtures so long as the stop work order shall remain in effect.

C. The stop work order shall set forth the reasons why such work is being stopped, the provisions of this chapter being violated and the conditions under which the order may be removed and the work resumed.

D. When, in the opinion of the director, an emergency exists, a written stop work order shall not be required, and in such instances, oral notice to the owner, his agent or the person in charge of the work, by the director or his duly authorized representatives, shall have the same force and effect as a written order. (Prior code § 33-1-9)

16.12.100 Unsafe installations—Abatement.

All plumbing, plumbing installations or plumbing systems which are unsafe or unsanitary, or which are dangerous to human life, or which, in relation to existing or contemplated use, constitute a hazard to the health, safety or general welfare of the community, by reason of improper installation, inadequate maintenance or abandonment, are declared to be illegal and shall be abated by repair, replacement or removal. (Prior code § 33-1-11)

16.12.110 Revocation of permits—Fees not refunded.

The director of codes administration may revoke a plumbing permit or approval issued under the provisions of this chapter in the event there has been any false statement or wilful misrepresentations on which the permit or approval was based. In all such instances, where a permit has been revoked, the permit fee shall not be refunded nor applied to any subsequent application for a permit. (Prior code § 33-1-10)

Article II. Plumbing Code

16.12.120 Adoption by reference.

The following sections and appendices are adopted and incorporated into this chapter as the technical section of plumbing code of the metropolitan government, by reference, as fully as though copied into this code, except as have been or may be hereafter amended herein.

A. 2024 Edition of the International Plumbing Code published by the International Code Council, as amended in this chapter, and Appendices B, C, D, E, and F of the 2024 Edition of the International Plumbing Code.

B. The following sections of the Subsurface Sewage Disposal system laws and regulations as published by the Tennessee Department of Environment and Conservation, Ground Water Protection division, as amended October 1993, are adopted and incorporated into this chapter as the Plumbing Code of the Metropolitan Government, by reference, as fully as though copied in this chapter, except as such sections and appendices have been or may be hereafter revised or amended by the Metropolitan Council: Section 201.1 through Chapter 14 and Appendices A and B. See Chapter 15.72 of the Metropolitan of the Metropolitan Code of Laws for additional requirements. (Ord. BL2025-898 § 2, 2025; Ord. BL2020-458 § 2, 2020; Ord. BL2015-1145 § 11, 2015; Ord. BL2007-1390 § 13, 2007; Ord. BL2007-1373 § 5, 2007; Ord. BL2002-1142 § 16, 2002; Ord. BL2001-703 § 6, 2001; Ord. 96-562 § 34, 1996; Ord. 95-1487 § 29, 1995)

16.12.130 Amendments to the International Plumbing Code.

The following amendments, deletions, or additions to the 2024 Edition of the International Plumbing Code are adopted by reference, as fully as though copied into such Plumbing Code, and thereby made a part of the Plumbing Code.

A. Section 101.1 of the 2024 Edition of the International Plumbing Code is hereby amended by deleting Section 101.1 and substituting the following:

> 101.1 Title. These regulations shall be known as the Plumbing Code of Metro Nashville and Davidson County hereinafter referred to as "this code".

B. Sections 101.2 through 115.4 of the 2024 Edition of the International Plumbing Code are hereby amended by deleting Sections 101.2 through 115.4 in their entirety.

C. Section 201 of the 2024 Edition of the International Plumbing Code is amended by adding a new Section 201.5 and substituting the following:

> 201.5 Interchangeability with the International Codes. The International Building Code shall be construed to mean the 2024 International Building Code. The International Property Maintenance Code shall be construed to mean the Property Code of the Metropolitan Government. The International Mechanical Code shall be construed to mean the 2024 International Mechanical Code. The International Fuel Gas Code shall be construed to mean the 2024 International Fuel Gas Code. The International Plumbing Code shall be construed to mean the 2024 International Plumbing Code. The International Private Sewage Disposal Code shall be construed to mean the Subsurface Sewage Disposal Systems Code. The ICC Electrical Code shall be construed to mean the 2023 National Electrical Code.

D. Section 202 of the 2024 Edition of the International Plumbing Code is hereby amended by adding the definition of "Plumbing Official" as follows:

PLUMBING OFFICIAL — shall mean the Director of the Metropolitan Department of Codes Administration, his deputy or duly authorized representative.

E. Section 202 of the 2024 Edition of the International Plumbing Code is hereby amended by deleting the definition of "Code Official" and substituting the following:

CODE OFFICIAL — shall mean the Director of the Metropolitan Department of Codes Administration, his deputy or duly authorized representative.

F. Sections 305.4 and 305.4.1 of the 2018 International Plumbing Code are hereby amended by deleting Sections 305.4 and 305.4.1 and substituting the following:

305.4. Freezing. Plumbing fixtures, water, soil and waste pipes shall not be installed outside of a building, in attics or crawl spaces, concealed in outside walls, or in any other place subjected to freezing temperature unless adequate provision is made to protect such pipes from freezing by insulation or heat or both. Exterior water supply system piping shall be installed not less than eighteen (18) inches below grade.

305.4.1 Sewer depth. Building sewers that connect to private sewage disposal systems shall be a minimum of twelve (12) inches below finished grade at the point of septic connection. Building sewers shall be a minimum of twelve (12) inches below grade.

Exceptions: variations to sewer connection depth shall be allowed only in the event of the city sewer connection point being less than the above stated depth, or being at a depth that prevents for proper fall from the business or residence to the connection point. In these instances, PVC shall have a pipe stiffness of 300 PSI or greater to prevent deflection failure from external live load.

G. Section 312.3 of the 2024 International Plumbing Code is hereby amended by deleting Section 312.3 and substituting the following:

312.3 Drainage and vent air test. Plastic piping shall not be tested using air. An air test shall be made by forcing air into the system until there is a uniform gauge pressure of 5 psi (34.5 kPa) or sufficient to balance a 10-inch (254 mm) column of mercury. This pressure shall be held for a test period of not less than 15 minutes. Any adjustments to the test pressure required because of changes in ambient temperatures or the seating of gaskets shall be made prior to the beginning of the test period.

Exception: Air testing on plastic pipe shall be permissible when water is not readily available or when the temperature is forecast to be below 32 degrees. Test pressure shall be between 3 and 5 PSI pursuant to the manufacturers rating.

H. Section 410.4 of the 2024 Edition of the International Plumbing Code is hereby amended by deleting Section 410.4 and substituting the following:

410.4 Where businesses provide drinking water in a container free of charge, an ADA accessible bottle filling station with disposable cups, or an ADA accessible water dispenser with disposable cups, drinking fountains shall not be required in those businesses. In other occupancies where three or more drinking fountains are required, water dispensers shall be permitted to replace not more than 50 percent of the required number of drinking fountains.

I. 503.1 of the 2024 Edition of the International Plumbing Code is hereby amended by deleting Section 503.1 and substituting the following:

503.1 Cold water line valve. The cold water branch line from the main water supply line to each hot water storage tank or water heater shall be provided with a valve, located within 3 feet of the equipment and serving only the hot water storage tank or water heater. The valve shall not interfere or cause a disruption of the cold water supply to the remainder of the cold water system. The valve shall be provided with access on the same floor level as the water heater served.

J. Section 604.9 of the 2024 Edition of the International Plumbing Code is hereby amended by deleting Section 604.9 and substituting the following:

604.9 Water hammer. The flow velocity of the water distribution system shall be controlled to reduce the possibility of water hammer. A water-hammer arrestor shall be installed where quick-closing valves are utilized. Water hammer-arrestors shall be installed as per the plan design but at a minimum at all washing machines, dishwashers, standalone ice makers, and solenoid valves or as part of the engineered plan design. Water-hammer arrestors shall be installed in accordance with the manufacturer's instructions. Water-hammer arrestors shall conform to ASSE 1010.

K. Section 607.2 of the 2024 Edition of the International Plumbing Code is hereby amended by deleting Section 607.2 and substituting the following:

607.2 Hot or tempered water supply to fixtures. The developed length of hot or tempered water piping, from the source of hot water to the fixtures that require hot or tempered water, shall not exceed 100 feet. This distance can be measured in straight line of

site from the source to the fixture. Recirculating system piping and heat-traced piping shall be considered to be sources of hot or tempered water.

L. Section 903.1.1 of the 2024 Edition of the International Plumbing Code is hereby amended by deleting Section 903.1.1 and substituting the following:

903.1 Stack required. Open vent pipes that extend through a roof shall be terminated not less than 12 inches (304.8mm) above the roof.

M. The 2024 Edition of the International Pluming code is hereby amended by deleting Appendix A in its entirety.

N. The 2024 Edition of the International Plumbing Code is hereby amended by deleting Appendix F in its entirety and replacing Appendix F as follows:

APPENDIX F REGULATIONS GOVERNING PRIVATE SEWAGE DISPOSAL SYSTEMS

The following regulations shall apply to the manufacture, sale, installation, repair, alteration, extension and relocation of all private sewage disposal systems under the jurisdiction of the Metropolitan Government of Nashville and Davidson County.

F101. APPROVED AND LIMITATIONS.

F101.1 ALLOWABLE USE. Septic tanks and soil absorption systems and other similar facilities may be constructed where no public sewerage system is available or is likely to become available within a reasonable time.

F101.2 PUBLIC SEWER CONNECTION. Private domestic sewage treatment and disposal systems shall be discontinued and adequately abandoned when public sewers become available to the building served.

F101.3 PERMISSION TO CONSTRUCT. No plumbing permit shall be issued for the installation of any septic tank or disposal field or for any individual or private sewage disposal system until satisfactory evidence of approval of such system, by the Metropolitan Department of Health, has been submitted to the Department of Codes Administration. On approved and recorded subdivisions, such notification consists of a letter to Codes Administration from the Health Department which covers each subdivided lot.

F101.4 PLANS AND SPECIFICATIONS.

F101.4.1 All manufacturers or distributors of mechanical sewage disposal units, filters, precast septic tanks or any other method of sewage disposal must submit detailed plans and specifications to the Director of Health of the Metropolitan Health Department, and receive approval prior to the manufacture and sale or installation of the product with the Metropolitan area of Nashville and Davidson County.

F101.4.2 Commercial and public buildings, such as but not limited to theaters, food dispensers, assembly halls, schools, churches, apartment buildings, motels, factories, mobile home parks, camp grounds and parks proposed to be constructed in an unsewered area, must submit detailed plans and specifications for the proposed sewage disposal system to the Sanitary Engineering Division of the Metropolitan Health Department for approval prior to any construction.

F101.4.3 The plans and specifications shall be submitted in triplicate and shall include the following:

F101.4.3.1 Detailed plan of the proposed septic tank or treatment tank and effluent disposal system showing building location, and with the distance labeled from building served to system, from system to well, lot line, lake, stream or other watercourse.

F101.4.3.2 The ground slope should be indicated and information submitted relative to the expected use and occupancy of the building to be served.

F101.4.3.3 Provide soil borings and percolation test data.

F101.4.3.4 There shall be maintained at the project site one set of plans bearing the Health Department's stamp of approval.

O. The 2024 Edition of the International Plumbing Code is hereby amended by adding Appendix G as follows:

Appendix G Governing Connections to Public Utilities

The Plumbing Code of Metro Nashville and Davidson County shall enforce all regulations required by State and Federal Law issued by Metro Water Services. Please refer to Water Development Services page on the Metropolitan Government website for the most up to date requirements. (Ord. BL2025-898 § 2, 2025; Ord. BL2020-458 § 2, 2020; Ord. BL2019-95 § 2, 2020; Ord. BL2015-1145 § 11, 2015; Ord. BL2007-1390 § 14, 2007; Ord. BL2002-1142 § 17, 2002; Ord. 98-1445 §§ 48—50, 1998; Ord. 96-562 § 35, 1996; Ord. 95-1487 §§ 30—51, 1995; Ord. 92-118 §§ 6—8, 1992; Ord. 89-1001 § 1 (part), 1989; Ord. 89-828 §§ 1, 2, 1989; prior code § 33-1-28 (a) (part))

16.12.140 Amendments to the Plumbing Sections of the 2024 International Residential Code for One- and Two-Family Dwellings.

The following amendments, deletions or additions to the 2024 Edition of the International Residential Code

for One- and Two-Family Dwellings are hereby adopted by reference as fully as though copied into said dwelling code and thereby made a part of the dwelling code.

A. Section P2603.5 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section P2603.5 and substituting the following:

P2603.5 Freezing. Water, soil or waste pipe shall not be installed or permitted outside of a building, or concealed in exterior walls, in attics spaces or crawl spaces, building overhangs above the adjacent grade, or in any other place subjected to freezing temperature unless adequate provision is made to protect it from freezing by insulation or heat or both. Water service pipe shall not be installed less than 18 in. below finished grade measured from the top of the pipe.

B. Section P2603.5.1 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section P2603.5.1 and substituting the following:

P2603.5.1 Sewer Depth. Building sewers that connect to private sewage disposal systems shall be a minimum of 12 inches below finished grade at the point of septic tank connection. Building sewers shall be a minimum of 12 inches below grade.

Exceptions: variations to sewer connection depth shall be allowed only in the event of the city sewer connection point being less than the above stated depth, or being at a depth that prevents for proper fall from the business or residence to the connection point. In these instances, PVC shall have a pipe stiffness of 300 PSI or greater to prevent deflection failure from external live load.

C. Section P2903.3 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by adding the following new Section P2903.3.

P2903.3 Minimum pressure. Minimum positive pressure or twenty (20) psi is required at the building entrance for either public or private water services. The pressure shall be increased by means of an elevated water tank, a hydropnuematic pressure booster system or a water pressure booster pump. No person shall install or maintain a water service connection to any dwelling where a booster pump has been installed unless such booster pump is equipped with a low pressure cut-off mechanism designed to cut off the booster pump when the pressure on the suction side of the pump drops to twenty (20) psi gage.

D. Section P2903.10.1 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section P2903.10.1 and substituting the following:

P2903.10.1 Service Valve. A main shut-off valve on the water service line shall be installed for each dwelling unit within a building and shall be accessible in the living portion of the dwelling unit or an attached garage. Additionally, the water service shall be valved at the curb or property line in accordance with local requirements. (Ord. BL2025-898 § 2, 2025; Ord. BL2020-458 § 2, 2020; Ord. BL2015-1145 § 12, 2015; Ord. BL2007-1373 § 6, 2007; Ord. BL2001-703 § 7, 2001; Ord. 96-562 §§ 36—67, 1996)

Article III. (Reserved)

Article IV. Plumbing Permits

16.12.150 Required—Exceptions.

A. A plumbing permit shall be obtained from the department of codes administration prior to the installation of any plumbing, plumbing system or part thereof, including the installation or repair of a new or existing private sewage disposal system, and prior to the connection of any such plumbing installation or plumbing system to any sewer, sanitary or storm drain, septic drain, or sewage disposal system, public or private, and prior to the installation of any plumbing device, equipment, appliance or fixture in any existing or proposed plumbing installation or system, regardless of whether any such plumbing installation is made within the county or outside the limits thereof.

B. A permit shall not be required for any storm drainage system except where the same connects to a public storm sewer or combination sewer, or is inside or under a building. (Prior code § 33-1-29)

16.12.160 Application.

Application for a plumbing permit shall be made in writing on forms provided by the director of codes administration. Each applicant entitled to receive a plumbing permit shall submit such information as may be deemed necessary to assure that the plumbing installation or plumbing system for which a permit is requested, when installed, shall comply with the requirements and provisions of this chapter. (Prior code § 33-1-32)

16.12.170 Qualifications.

No permit for the installation of any plumbing, plumbing system, or part thereof, or the connection of any such plumbing installation or plumbing system to any sewer, septic tank or sewerage disposal system,

public or private, or the installation or repair of any plumbing device, equipment, appliance, or fixture required or governed by this chapter shall be issued to any person unless such person has been duly registered by the department of codes administration as a metropolitan plumbing contractor; except, that a person holding a current and valid certificate of registration as a metropolitan master plumber or a property owner shall be authorized to obtain permits to do plumbing work or to make plumbing installations as follows:

A. A person holding a certificate as a metropolitan master plumber shall be authorized to obtain permits to do plumbing work in connection with buildings and properties owned and operated by the organization or institution named as employer in his application for examination and certification.

B. The director of codes administration or his duly authorized representative shall be authorized to issue a "homeowner permit" to any resident homeowner desiring to make plumbing improvements and/or additions to his/her residence with the following condition: The improvement and/or additions must be performed by the resident homeowner and must satisfy the chief plumbing inspector that he/she is qualified to install such plumbing work. (Ord. 89-1028 § 2, 1989; prior code § 33-1-30)

16.12.180 Plans and specifications—Requirements.

A. When, in the opinion of the director of codes administration, detailed plans and specifications are necessary to define the nature and character of the work to be performed and to identify the type, grade, and size of the materials, devices, equipment, and fixtures to be installed, the applicant for a plumbing permit shall furnish such plans and specifications with the application for a plumbing permit. Such plans shall be drawn to scale and all plans and specifications shall be in duplicate.

B. All information submitted with the application for a plumbing permit and in the plans and specifications shall be specific, and this chapter shall not be cited as whole or in part, nor shall the term "legal" or "equivalent" be used as a substitute for the specific information required. (Prior code § 33-1-33)

16.12.190 Applications—Timely action upon.

The director of codes administration shall act upon, or cause to be acted upon, an application for a plumbing permit, with plans and specifications as filed therewith or as such may be amended, without unreasonable or unnecessary delay. (Prior code § 33-1-34)

16.12.200 Applications—Examination by director.

The director of codes administration shall examine, or cause to be examined, each application for a plumbing permit and the plans and specifications submitted therewith, and shall determine by such examination whether the plumbing installation, plumbing system, device, equipment, fixtures, etc., as indicated and described, are in accordance with the provisions and requirements of this chapter and other pertinent laws and ordinances. (Prior code § 33-1-35)

16.12.210 Reviewed plans—Labeled—Copy at jobsite.

Each set of reviewed plans and specifications shall be properly marked "Reviewed," with one set being returned to the applicant with the permit, and one set to be retained as a record in the office of the director of codes administration. A copy of the reviewed plans and specifications shall be kept on the job at all times during the progress of the work. (Ord. 95-1487 § 86 (part), 1995; prior code § 33-1-36)

16.12.220 Fee schedule—Plumbing permits and fixture classifications.

A. No plumbing permit shall be held valid until the fees prescribed in this section shall have been paid, nor shall an amendment or change to an existing permit be approved until such additional fees as may be due shall have been paid.

B. Permit fees for the installation of plumbing systems, devices, equipment and fixtures, including but not limited to the installation of fixtures, sewer connections, septic tanks, hot water heaters, repairs and alterations to existing plumbing installations and systems, shall be as follows:

Minimum fee (each permit)	$75.00
*Plumbing fixtures (each fixture)	$11.00
Each additional building drain	$32.00
Sewer connection	$80.00
Water service connection.	$80.00
Septic tank and disposal field	$80.00
Hot water heater.	$43.00
Re-inspection fee (each)	$50.00

*Each fixture outlet shall be counted as one fixture in figuring the total permit fee, whether or not the fixture is actually set at the time the plumbing system is installed.

C. The classifications listed below, among others, shall each be counted as one fixture:

Area drains;

Backflow preventers;

Baptisteries;
Bathtubs (with or without overhead shower);
Boiler blow-off tanks;
Combination sink and tray;
Commercial icemakers.
Dental lavatory;
Dental unit or cuspidor;
Diluting tanks and interceptors;
Dishwasher (fixed unit);
Disposal units (commercial);
Drinking fountains;
Floor drains;
Grease traps and interceptors;
Kitchen sinks;
Lavatory;
Pools, fountains and aquaria;
Roof drains;
Shower drains;
Slop sinks
Solar panels when connected to plumbing system;
Sump pumps;
Swimming pools;
Urinals;
Washers (clothes, domestic, fixed drains);
Washers (commercial, fixed drains);
Water closets;
Water tanks.

D. Workforce housing fee adjustments.

1. In order to facilitate the provision of workforce housing within the area of the metropolitan government, the permit fees provided in subsection B. of this section shall be reduced by twenty-five percent for new home construction, or the rehabilitation of existing dilapidated and vacant homes, to be used for workforce housing.

2. For purposes of this subsection, "workforce housing" means housing that meets one of the following two criteria:

a. Housing to be sold at a price at or below two and one-half times ninety-five percent of the median family income currently listed for Davidson County as established by the U.S. Department of Housing and Urban Development; or

b. Housing to be rented for at least five years at an annual rental amount that is at or below thirty percent of seventy percent of the median family income currently listed for Davidson County as established by the U.S. Department of Housing and Urban Development.

3. The director shall have the authority to promulgate rules and regulations to implement the provisions of this subsection, provided such rules and regulations are not inconsistent with the express provisions of this subsection. Applicants obtaining the twenty-five percent reduction in permit fees for workforce housing shall provide the director with a sworn affidavit that the residences constructed will satisfy the criteria set forth above and shall file a deed restriction with the Davidson County Register of Deeds requiring that the property remain a workforce housing unit for at least five years. In the event the property does not remain a workforce housing unit for at least five years, the permit holder shall pay to the Metropolitan Government the amount of the permit fee reduction provided above plus interest at the rate of ten percent per annum. (Ord. BL2022-1215 § 2, 2022; Subst. Ord. BL2010-788 § 1, 2010; Ord. BL2010-642 § 5, 2010; Ord. BL2004-175 § 1, 2004; Ord. 92-118 § 10, 1992; Ord. 89-1001 § 3, 1989; Ord. 89-820 §§ 1, 2, 1989; prior code § 33-1-37)

16.12.230 Failure to obtain permit—Fees tripled—Exception.

In addition to any other penalty imposed for failure to obtain a permit, when work on any plumbing, plumbing installation or plumbing system requiring a permit is commenced prior to the issuance of the required permit, the permit fee for such work shall be tripled; provided, that the triple fee penalty shall not be applied when, in the opinion of the director of codes administration, an emergency exists. (Ord. 91-1529 § 2, 1991; prior code § 33-1-38)

16.12.240 Fees—Refunds.

A. Application for a refund of fees paid for any unused permit issued under the provisions of this chapter shall be made on forms provided by the director of codes administration.

B. Refunds shall only be made for that portion of a fee exceeding seventy-five dollars. In no case shall any fee be refunded on any unused permit over six months old or when any inspection has been made, regardless of the fees paid. (Ord. BL2025-1101 § 1, 2025; Ord. BL2010-642 § 6, 2010; Ord. 91-1529 § 3, 1991; prior code § 33-1-39)

16.12.250 Issuance.

Upon approval of the application for a plumbing permit and the plans and specifications submitted therewith, the director of codes administration shall issue or cause to be issued a permit therefor to the applicant. (Prior code § 33-1-40)

16.12.260 Permit denied.

In such instances where it has been determined that the application for a plumbing permit or the plans and specifications filed therewith do not conform to the requirements of this chapter or other pertinent laws and ordinances, a plumbing permit shall be refused. The

plans and specifications shall he returned to the applicant with a statement setting forth the reasons for such refusal. (Prior code § 33-1-41)

16.12.270 Interpretation—Limit of authority.

A. The issuance of a plumbing permit shall be construed as the authority to proceed only with the work specified and approved, and shall not in any manner be construed as the authority to violate, cancel, alter, change or set aside any of the provisions of this chapter, nor to do or perform any work or make any installation not specifically covered by the approved plans and specifications upon which the permit was issued. The issuance of a plumbing permit shall not prevent nor prohibit the director of codes administration from thereafter requiring the correction of errors or omissions in the plans and specifications or in the plumbing installation or of violations of this chapter.

B. The plumbing contractor shall be responsible for notifying the plumbing inspector of any change in plans. (Prior code § 33-1-42)

16.12.280 Nontransferability.

Permits issued under this chapter are not transferable from one contractor, one job, site or location to another, and any refunds shall be made in accordance with Section 16.12.240. This provision shall not prohibit the correction or change of addresses, location or contractor made through error on the application. (Ord. 98-1445 § 76, 1998)

16.12.290 Expiration—Extensions.

Any plumbing permit issued shall become invalid unless the work authorized by such permit shall have been commenced within six months after the date of issuance, or if the work so authorized is suspended or abandoned for a period of one year after the time the work is commenced. The director of codes administration may, for justifiable cause, grant one or more extensions of time for periods not exceeding ninety days each. (Prior code § 33-1-43)

16.12.295 Change in contractor—Reissuance of permit—Fees.

When a change in a contractor occurs before a job is completed, the contractor who obtains the permits shall notify the codes department in writing. A new permit shall be taken out for the unfinished construction. If the permit fee for the original construction was not refunded, the contractor that completes the construction shall pay a fee based on the administrative costs to process the permit that shall be no less than the minimum permit fee. If the permit fee for the original construction has been refunded, the contractor that completes the construction shall pay a full permit fee based upon the construction. (Ord. BL2025-1101 § 2, 2025; Ord. 98-1445 § 77, 1998)

Article V. Inspections

16.12.300 Required when.

All new plumbing installations and plumbing systems and such portions of an existing plumbing system as may be affected by new plumbing installation or changes, for which a permit is required, shall be inspected to assure compliance with the requirements of this chapter and to assure that the installation and construction of the plumbing system is in accordance with the approved plans and specifications. (Prior code § 33-1-44)

16.12.310 Inspection test—Permittee's responsibility.

It shall be the responsibility of the person to whom a plumbing permit has been issued to assure that the plumbing installation made will stand the test prescribed before making a request of the department of codes administration for test and inspection. (Prior code § 33-1-46)

16.12.320 Notice to director that work is ready for inspection.

It shall be the duty of the person to whom a plumbing permit is issued to give reasonable advance notice to the department of codes administration when the plumbing work for which a permit has been issued is ready for test and inspection. (Prior code § 33-1-45)

16.12.330 Materials and labor for tests.

The equipment, material, power and labor required for all plumbing inspections and tests shall be furnished by the permittee. (Prior code § 33-1-48)

16.12.340 Testing of plumbing and drainage systems required.

All piping of the plumbing system shall be tested with either water or air. After the plumbing fixtures have been set and their traps filled with water, the entire drainage system shall be submitted to a final test. The director of codes administration may require the removal of any cleanouts to ascertain that the pressure has reached all parts of the system. (Prior code § 33-1-49)

16.12.350 Testing—Procedure for water test.

A. The water test shall be applied to the drainage system in its entirety or in sections. If the test is applied to the entire system, all openings in the piping shall be

tightly closed, except the highest opening and the system filled with water to the point of overflow. If the system is tested in sections, each opening shall be tightly plugged, except the highest openings in the section under test, and each section shall be filled with water. No section shall be tested with less than a ten-foot head of water.

B. In testing successive sections, the upper ten feet of the next preceding section shall be tested so that no joint or pipe in the system (except the uppermost ten feet of the system) shall have been subjected to a test of less than a ten foot head of water.

C. The water shall be kept in the system or that portion of the system under test for fifteen minutes prior to inspection.

D. For successful passage of this test, the system shall be tight at all joints. (Prior code § 33-1-50)

16.12.360 Testing—Procedure for air test.

A. When an air test is used, the test shall be made by attaching an air compressor or testing apparatus to any suitable opening after closing all other inlets and outlets to the system. Air is then forced into the system until there is a uniform gauge pressure of five pounds per square inch or sufficient pressure to balance a column of mercury ten inches in height.

B. To satisfactorily complete this test, the pressure shall be maintained for a period of fifteen minutes without the introduction of additional air. (Prior code § 33-1-51)

16.12.370 Testing—Final test—Additional tests.

A. The final test of the completed drainage and vent system shall be visual and performed in such a manner as to assure that the entire plumbing system meets the requirements of this chapter for such installation. When, in the opinion of the director of codes administration, acceptable performance of the plumbing installation or plumbing system is questionable, he may require such system to be subjected to a smoke or peppermint test.

B. When the smoke test is used, it shall be made by filling all traps with water and then introducing into the entire system a pungent, thick smoke produced by one or more smoke machines. When smoke appears at the stack openings they shall be closed and a pressure equivalent to a one-inch water column shall be built up and maintained for fifteen minutes before inspection.

C. When the peppermint test is used, two ounces of oil of peppermint shall be introduced for each line or stack.

D. For successful passage of this test, the system shall be tight at all joints. (Prior code § 33-1-52)

16.12.380 Testing of existing plumbing.

When there is reason to believe that the drainage system of any building has become defective, it shall be subjected to an inspection and test prior to approval for further use. (Prior code § 33-1-56)

16.12.390 Testing of interior leaders and downspouts.

Leaders or downspouts and branches within the building shall be tested by water or air as set forth in Sections 16.12.350 and 16.12.360, respectively. (Prior code § 33-1-54)

16.12.400 Testing water supply systems.

Upon completion of a section or of the entire water supply system, it shall be tested and proved tight under a water pressure not less than twenty-five pounds above the working pressure under which it is to be used. The water used for tests shall be obtained from a potable source of supply. (Prior code § 33-1-53)

16.12.410 Notice of rejection.

A. In the event of failure of a plumbing installation or plumbing system to pass the required tests and inspection, notice of such failure shall be given the permittee and a plumbing-rejected notice shall be placed in a conspicuous place within the building, pending a reinspection and testing.

B. It is unlawful for any person to remove a plumbing-rejected notice prior to satisfactory completion of the reinspection testing. (Prior code § 33-1-58)

16.12.420 Reinspection required—Fee.

When the plumbing installation does not pass the required inspections, the permittee shall be required to make the necessary changes and corrections and to submit the plumbing installation to reinspection within ten working days after rejection. In all instances where reinspections are deemed necessary, an additional fee of ten dollars shall be paid for each reinspection required. (Prior code § 33-1-47)

16.12.430 Notice of approval—When—Posted.

Upon satisfactory completion of the roughing-in inspection and testing of a plumbing installation or plumbing system, notice of approval of such installation shall be posted in a conspicuous place within the building. Such notice shall be dated and properly signed by the person making the inspection. (Prior code § 33-1-57)

16.12.440 Certificate of approval—Issuance.

Upon satisfactory completion and final test of the plumbing system, a certificate of approval may be issued by the director of codes administration, upon the request of the permittee or owner. (Prior code § 33-1-59)

16.12.450 Covering work prior to approval prohibited.

A. No plumbing, plumbing installation, plumbing system or part thereof shall be covered until it has been inspected, tested and approved, as required by this chapter.

B. When any plumbing, plumbing installation, plumbing system or part thereof has been covered prior to being inspected and tested, the director of codes administration shall require the same to be uncovered, in order that the necessary test may be performed. (Prior code § 33-1-55)

Chapter 16.16

GAS/MECHANICAL REGULATIONS

Sections:

Article I. General Regulations

16.16.010 Intent—Remedial.
16.16.020 Scope.
16.16.030 Proper maintenance required—Owner's responsibility.
16.16.040 Alteration or repair to existing system—Compliance required—Exception.
16.16.050 Change in occupancy classification—Conformance required.
16.16.060 Variances for existing buildings—Authority of director.
16.16.070 Homeowner permits—Regulations.
16.16.080 Enforcement—Authority of director—Approval of promulgated regulations required.
16.16.090 Inspection records—Open to public.
16.16.100 Right of entry.
16.16.110 Stop work orders—Service—Content—Emergency procedure.
16.16.120 Stop work order—Appeal.
16.16.130 Revocation of permit—Fees not refunded.
16.16.140 Hazardous installations—Abatement.
16.16.150 Additional requirements—determined by director.
16.16.160 Conflicts with other ordinances.
16.16.170 Alternate methods or materials—Approval required.

Article II. Gas and Mechanical Codes

16.16.180 Adopted by reference.
16.16.190 Certain supplemental codes and standards adopted by reference.
16.16.230 Amendments to gas/mechanical sections of the 2024 International Residential Code for One- and Two-Family Dwellings.
16.16.240 Local amendments to International Fuel Gas Code.
16.16.250 Liquefied Petroleum Gases Code—Local amendments.
16.16.260 International Mechanical Code—Local amendments modified.
16.16.270 Equipment, appliances and/or HVAC&R units.
16.16.280 Electrical connections.
16.16.290 Plumbing connections.
16.16.300 Gas connections—Adequate air supply required.
16.16.310 Gas connections—Authority.
16.16.320 Fuel gas installations and operating pressures.
16.16.330 Work not requiring contractor's license—Permit required.

Article III. Permits

16.16.340 Required when—Exceptions.
16.16.350 Registration as metropolitan master contractor required—Exception.
16.16.360 Application—Signature of certificate holder.
16.16.370 Plans and specifications—Requirements.
16.16.380 Examination of applications.
16.16.390 Plans and specifications—Reviewed—Copy at jobsite.
16.16.400 Fee schedule—Gas/mechanical permits and classification of appliances.
16.16.410 Failure to obtain permit—Fees tripled.
16.16.420 Issuance.
16.16.430 Permit denied—Written statement.
16.16.440 Interpretation—Limited authority.
16.16.450 Expiration—Extension.
16.16.460 Nontransferability—Refunds.
16.16.470 Change in contractor—Reissuance of permit—Fees.
16.16.480 Fees—Refunds.

Article IV. Inspections

16.16.490 Required when.
16.16.500 Alteration of existing system.
16.16.510 Inspection test—Permittee's responsibility.

16.16.520 Successive inspections—Conducted when.
16.16.530 Notice to director that work is ready for inspection.
16.16.540 Retesting and reinspection—Fee.
16.16.550 Notice of approval when.
16.16.560 Notice of rejection.
16.16.570 Certificate of approval.
16.16.580 Temporary certificate of approval.

Article V. Certification of Contractors

16.16.590 Classifications of certificates—Enumerated.
16.16.600 Classifications—Defined.
16.16.610 Examination, certification and registration required.
16.16.620 Application—Duty of contractor—Prerequisites.
16.16.630 Limited certificate.
16.16.640 Examination—Notice of.
16.16.650 Examination—Content.
16.16.660 Examination—Failure to appear.
16.16.670 Reexamination.
16.16.680 Issuance—Requirements.
16.16.690 Fees.
16.16.700 Annual renewal—Penalty for failure to renew.
16.16.710 Duties of certificate holders.
16.16.720 Revocation of certificate—Grounds—Notice—Recertification.
16.16.730 Inactivation of certificate upon holder's request.

Article VI. Contractor Requirements

16.16.740 Metropolitan master mechanical contractor defined.
16.16.750 Metropolitan HVAC&R contractor defined.
16.16.760 Metropolitan gas and appliance contractor defined.
16.16.770 Issuance of certificates to existing contractors without examination—Requirements.
16.16.780 Registration, bonding and insurance—Requirements.
16.16.790 Duties of gas/mechanical contractors.
16.16.800 Registration—Certification required.
16.16.810 Revocation of registration—Grounds—Notice—Reinstatement.
16.16.820 Contractor's eligibility for permits—Employment of certificate holder required.
16.16.830 Stop work order—Issued for work authorized under certificate holder required.
16.16.840 Display of license and advertising.
16.16.850 Vehicle identification requirements.
16.16.860 Advertisements must include certificate numbers and classification.

Article I. General Regulations

16.16.010 Intent—Remedial.

This chapter is declared to be remedial and shall be construed to secure the beneficial interests and purposes thereof, which are health, sanitation, general public safety and welfare, by regulation of all heating, ventilating, air conditioning, refrigeration, and gas installations, systems, alterations, repairs, and maintenance. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-1)

16.16.020 Scope.

A. The provisions of this Code shall apply to the installation of consumer's gas piping, gas appliances, and related accessories as covered in this Code. These requirements apply to gas piping systems extending from the point of delivery to the inlet connections of appliances, and the installation and replacement of residential and commercial gas appliances and related accessories.

B. The provisions of this Code shall also apply to the installation of mechanical systems, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings and/or appurtenances, including ventilating, heating, cooling, air conditioning and refrigeration systems, incinerators, radon gas reduction systems, and other energy-related systems.

C. Nothing in this chapter shall be construed to prohibit, and no permits shall be required for, normal maintenance and repairs to an existing gas and/or mechanical system.

D. Nothing in this chapter shall apply to gas piping, meters, gas pressure regulators, and other appurtenances used by the serving gas supplier in distribution of gas, other than undiluted LP gas. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-2)

16.16.030 Proper maintenance required—Owner's responsibility.

A. All mechanical, heating, ventilating, air conditioning and refrigeration, both new and existing, and all parts thereof and appurtenances thereto, shall be installed and maintained as required by this chapter, in a safe and clean condition.

B. All devices, equipment and safeguards required by this chapter shall be installed and properly maintained in a safe and clean manner and in good working order. The owner, or his designated agent, shall be held responsible for the proper maintenance of all gas/mechanical installations and gas/mechanical systems. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-3)

16.16.040 Alteration or repair to existing system—Compliance required—Exception.

Alterations, repairs or replacement work may be made to any existing gas system or mechanical systems without requiring the system to comply with all the requirements of this Code provided that the alteration, repair or replacement work conforms to the requirements of this code for new construction. The gas/mechanical official shall determine the extent to which the existing system shall be made to conform to the requirements of this code for new construction. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-4)

16.16.050 Change in occupancy classification—Conformance required.

If the occupancy classification of an existing tenant space or building is changed, the gas/mechanical system shall be made to conform to the latest adopted gas/mechanical code. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-5)

16.16.060 Variances for existing buildings—Authority of director.

A. To promote conservation and rehabilitation of existing buildings, alterations, repairs, or change of occupancy and use may be made to existing buildings where such rehabilitation is made to conform to the intent of this Code as established by the director. The director may exercise discretionary authority, subject to appeal, to vary or modify in whole or in part the application of any provision of this Code where compliance with such provision would create practical difficulty or undue hardship.

B. Such variance or modification shall be consistent with the intent of this Code, which is to achieve acceptable levels of safety for the general public. The director shall require documented justification for any request for such variance or modification from any code provision to be prepared in written form, supported by technical or other data deemed necessary and that such proposal become a part of the permanent records of the department of codes administration. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-6)

16.16.070 Homeowner permits—Regulations.

Nothing in this chapter shall prevent a resident homeowner from installing or maintaining a mechanical system within his/her own property boundaries, provided such work is done by himself/herself. Such privilege does not convey the right to violate any of the provisions of this chapter, nor is it to be construed as exempting any such homeowner from obtaining a permit and paying the required fees therefor.

The director of codes administration or his duly authorized representative shall be authorized to issue "homeowner permits" to property owners desiring to make mechanical repairs and/or additions to their property or improvements thereto. Homeowner permits shall be issued only if the applicant meets the following conditions:

1. The mechanical repairs and/or additions shall be made to the applicants principle dwelling. This may also include one side or a duplex dwelling unit.

2. For construction of a new single-family dwelling, the homeowner may obtain one gas/mechanical permit every two years for a new mechanical installation.

3. The repairs, additions and/or new dwelling shall be of such nature that a person of average intelligence could make the repairs and/or additions without the assistance of a gas/mechanical contractor.

4. The department of codes administration may void a homeowner's permit if it is determined that the installation is beyond the capabilities of the homeowner and the work being done does not comply with this chapter.

5. The homeowner must do the work himself without the help of a gas/mechanical contractor or certificate holder.

6. Gas piping and gas connections to an appliance or equipment shall be only installed by a licensed master mechanical, HVAC&R or gas and appliance contractor. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-7)

16.16.080 Enforcement—Authority of director—Approval of promulgated regulations required.

A. The director of codes administration shall have the power and his duty shall be to enforce, in the manner herein provided, all laws, ordinances, rules and regula-

tions relating to gas and mechanical, gas and mechanical installations and gas and mechanical systems as set forth in this chapter and any amendments thereto, and to promulgate such rules and regulations as may be deemed necessary for the effective enforcement of this chapter.

B. Such rules and regulations as may be promulgated by the director pursuant to this section shall be approved by the board of gas/mechanical examiners and appeals, shall be approved by the department of law as to form and legality and shall become effective upon written approval of the mayor. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-8)

16.16.090 Inspection records—Open to public.

The director of codes administration shall keep or cause to be kept a record of the business activities of the gas/mechanical inspection section. Such records shall be open for public inspection during the normal office hours of the department of codes administration. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-9)

16.16.100 Right of entry.

The director of codes administration shall enforce the provisions of this chapter, and he or his duly authorized representative may enter, with the consent of the owner or occupant or with a valid search warrant, and upon presentation of proper identification, any building, structure or premises within the metropolitan government area to perform any duty or responsibility imposed upon him by this chapter. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-10)

16.16.110 Stop work orders—Service—Content—Emergency procedure.

A. When it is found that any gas/mechanical installation is being made or that any gas/mechanical devices, equipment or fixtures required by this chapter are being installed contrary to the provisions of this chapter, or that such gas/mechanical installations, devices, equipment or fixtures installed are dangerous or unsafe, the director of codes administration shall issue or cause to be issued a stop work order.

B. Such stop work order shall be in writing and shall be served upon the owner of such property, his duly authorized agent or the person responsible for such work. A copy of the stop work order shall be posted in a conspicuous place upon the premises and it is unlawful for any person to remove such order or to perform any work on the gas or mechanical installation, device, equipment or fixtures so long as the stop work order shall remain in effect.

C. The stop work order shall set forth the reasons why such work is being stopped, the provisions of this chapter being violated and the conditions under which the order may be removed and the work resumed.

D. When, in the opinion of the director of codes administration, an emergency exists, a written stop work order shall not be required, and in such instances, oral notice to the owner, his agent or the person in charge of the work, by the director of codes administration or his duly authorized representatives, shall have the same force and effect as a written order. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-11)

16.16.120 Stop work order—Appeal.

Upon written notice of an appeal to the board of gas/mechanical examiners and appeals, involving a work stoppage under the circumstances as set forth in Section 16.16.110, the board may meet in special session and shall take such action as may be deemed necessary to assure that the intent and purpose of this chapter are complied with. In each such instance, the action of the board shall be final, subject to such relief as the aggrieved party may have at law or in equity. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-11.1)

16.16.130 Revocation of permit—Fees not refunded.

The director of codes administration may revoke a gas/mechanical permit or approval issued under the provisions of this chapter in the event there has been any false statement or wilful misrepresentations on which the permit or approval was based. In all such instances, where a permit has been revoked, the permit fee shall not be refunded nor applied to any subsequent application for a permit. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-12)

16.16.140 Hazardous installations—Abatement.

All gas/mechanical installations or gas/mechanical systems which are unsafe, or which are dangerous to human life, or which, in relation to existing or contemplated use, constitute a hazard to the health, safety or general welfare of the community, by the reason of improper installation, inadequate maintenance or abandonment, are declared to be illegal and shall be abated by repair, replacement or removal. Any person making unsafe, hazardous, etc. installation shall be brought before the board for possible disciplinary action. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-13)

16.16.150 Additional requirements—Determined by director.

Any requirement deemed necessary for the safety, strength or stability of an existing or proposed gas/mechanical installation or gas/mechanical system or for the health, safety or welfare of the occupants of any building or structure, not specifically covered by the provisions of this chapter, shall be determined by the director of codes administration, subject to an appeal to the board of gas/mechanical examiners and appeals. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-14)

16.16.160 Conflicts with other ordinances.

A. In any case where a provision of this chapter is found to be in conflict with a provision of any zoning, housing, building, fire, safety, plumbing or health ordinance or code of the metropolitan government, existing on January 1, 1966, the provision which establishes the higher standard for the promotion and protection of the health and safety of the public shall prevail.

B. Where a provision of this chapter is found to be in conflict with a provision of any other ordinance or code of the metropolitan government, existing on January 1, 1966, which establishes a lower standard for the promotion and protection of the health and safety of the public, the provisions of this chapter shall be deemed to prevail, and such other ordinances and codes are declared to be repealed to the extent that they may be found in conflict with the gas/mechanical code. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-15)

16.16.170 Alternate methods or materials—Approval required.

The provisions of this code are not intended to prevent the use of any material or method of construction not specifically prescribed by this code, provided any such alternate has been approved by the gas/mechanical official. The gas/mechanical official may approve any such alternate, provided he finds that the alternate for the purpose intended is at least the equivalent of that prescribed in this code in quality, strength, effectiveness, fire resistance, durability, and safety. The gas/mechanical official shall require that sufficient evidence or proof be submitted to substantiate any claim made regarding the alternate. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-16)

Article II. Gas and Mechanical Codes

16.16.180 Adoption by reference.

The following sections and appendices are adopted and incorporated into this chapter as the technical section of the building code of the metropolitan government, by reference, as fully as though copied into this code, except as have been or may be hereafter amended herein:

A. 2024 Edition of the International Fuel Gas Code, Appendices A, B, C, & D.

B. 2024 Edition of the International Mechanical Code, Appendix A. (Ord. BL2025-898 § 3, 2025; Ord. BL2020-458 § 3, 2020; Ord. BL2015-1145 § 13, 2015; Ord. 90-1253 § 1 (part), 1990; prior code §§ 19-1-40, 19-1-40.1)

16.16.190 Certain supplemental codes and standards adopted by reference.

The following sections and appendices are adopted and incorporated into this chapter as the technical section of the building code of the metropolitan government, by reference, as fully as though copied into this code, except as have been or may be hereafter amended herein:

A. The 2024 Edition of the Storage and Handling of Liquefied Petroleum Gases (NFPA 58), Sections 1-1 through 9-5.6 and Chapter 12, inclusive with Appendixes A, B, C, D, E, F, G, H and I. (Ord. BL2025-898 § 3, 2025; Ord. BL2020-458 § 3, 2020; Ord. BL2015-1145 § 14, 2015; Ord. BL2007-1373 § 3, 2007; Ord. BL2007-1390 § 10, 2007; Ord. BL2002-1142 § 18, 2002; Ord. BL2001 § 3, 2001; Ord. 98-1445 § 51, 1998; Ord. 96-562 § 28, 1996; Ord. 95-1487 §§ 52, 53, 1995; Ord. 92-118 §§ 11, 12, 1992; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-40.2—19-1-40.6)

16.16.230 Amendments to gas/mechanical sections of the 2024 International Residential Code for One- and Two-Family Dwellings.

The following amendments, deletions or additions to the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings are hereby adopted by reference as fully as though copied into said Dwelling Code and thereby made a part of the Dwelling Code.

A. Chapter 12 of the 2024 Edition of the International Residential code for One- and Two-Family Dwellings is hereby amended by adding the following new Section M1203:

SECTION M1203 AUTHORITY TO DISCONNECT UTILITIES IN EMERGENCIES

M1203 Authority. The building official shall have the authority to order disconnected a fuel supply or appliance that does not conform to this code; the building official shall also have the authority to order disconnected a gas utility service, or energy supplies

to a building, structure, premises or equipment in case of emergency when necessary to eliminate an immediate hazard to life or property. A notice shall be attached to the energy supply or appliances stating the reason for disconnection. Such notices shall not be removed, nor shall the system or appliance be reconnected until authorized by the building official.

B. Section M1601.1.1 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by adding the following new Section M1601.1.1(9):

M1601.1.1(9) All ductwork installed in non-conditioned and not completely conditioned areas such as, but not limited to, crawl, attic and floor/ceiling assemblies shall be insulated.

C. Section M1601.3 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by adding the following new Section M1601.3(1):

M1601.3(1) Duct Coverings and linings, including adhesives where used, shall have a flame spread index not higher than 25, and a smoke-developed index of not over 50 when tested in accordance with ASTM E84 or UL 723, using the specimen preparation and mounting procedures of ASTM E2231. The spray application of polyurethane foam to exterior ducts to insulate or seal the duct is prohibited.

D. Section M1601.4.1: Exception 1 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings are hereby amended by deleting Section M1601.4.1: Exception 1, and replacing with the following:

Exception 1. Using the specimen preparation and mounting procedures of ASTM E2231. The spray application of polyurethane foam to exterior ducts to insulate or seal the duct is prohibited.

E. Chapter 19 of the 2024 Edition of the International Residential code for One- and Two-Family Dwellings is hereby amended by adding the following new Section M1901.3:

M1901.3 Prohibited Location. Cooking appliances designed, tested, listed, or labeled for use in commercial occupancies shall not be installed within dwelling units or within any area where domestic cooking operations occur.

F. Section G2407.6.2 and Figure G2407.6.2 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings are hereby amended by deleting Sections G2407.6.2 and Figure G2407.6.2.

G. Section G2415.6 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by adding a new Section G2415.6.1:

G2415.6.1 Buried building piping. Piping shall not be installed in such a way as to be in contact with the ground or fill under a building or building floor slab. When the administrative authority determines that it is not practical to avoid the installation of building piping that is buried or laid under a floor slab, the gas piping shall be encased in wrought iron, plastic schedule 40 pipe or steel pipe. The casing shall extend into a normally usable and accessible portion of the building. At the point where the casing terminates in the building, the space between the casing and the gas piping shall be tightly and permanently sealed with materials such as commercial casing seals, plastic, foams, cement, tars or asphalt materials. The casing shall extend at least 4 inches (102 mm) outside the building and be vented and installed in a way as to prohibit the entrance of water. The entire installation shall be such that the gas piping can be readily replaced without damage to the building.

H. Section G2417.1.1 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section G2417.1.1 and substituting the following:

G2417.1.1 Inspections. On completion of the installation, alteration, repair or replacement of gas piping, and prior to the use thereof, the building official shall be notified that the gas piping is ready for inspection.

G2417.1.1.1 Accessibility for inspection. Excavations required for the installation of underground piping shall be kept open until such time as the piping has been inspected and approved. If piping is covered or concealed before approval, it shall be exposed on the direction of the building official.

G2417.1.1.2 Required inspections. The building Official shall make the following inspections and shall either approve that portion of the work as completed or shall notify the permit holder wherein the same fails to comply with this code.

G2417.1.1.3 Rough fuel-gas piping inspection. This inspection shall be made after gas piping authorized by the permit has been installed and before such piping has been covered or concealed or a fixture or appliance has been attached thereto. This inspection shall include a determination that the gas piping size, material and installation meet the requirements of this chapter. It shall also include an air pressure test, at which time the gas piping shall stand a pressure of not less than 10 pounds per square inch gauge (68.9 kPa gauge) and shall hold this pressure for a length of

time of not less than twenty (20) minutes, with no perceptible drop in pressure. The test shall be made using air pressure only and be verified in writing by the gas/mechanical contractor on forms authorized by the Department of Codes Administration witnessed and signed. Retest or additional certification, in special situations may be required by the Director of Codes Administration or by his/her duly authorized representative. Necessary apparatus for conducting test shall be furnished by the permit holder.

G2417.1.1.4 Final inspection. This inspection shall be made after piping authorized by the permit has been installed and after all portions thereof which are to be covered or concealed are so concealed and after all fixtures, appliances and shutoff valves have been attached thereto.

G2417.1.1.5 Other inspections. In cases where the work authorized by the permit consists of a minor installation of additional piping to piping already connected to a gas meter, the foregoing inspection may be waived at the discretion of the building official. The building official shall make such inspections as deemed advisable in order to assure that the work has been performed in accordance with the intent of this code.

I. Section G2417.4.1 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section G2417.4.1 and substituting the following:

G2417.4.1 Air Pressure Test. This inspection shall include an air pressure test, at which time the gas piping shall stand a pressure of not less than ten (10) pounds, per square inch gauge pressure and shall hold this pressure for a length of time of not less than twenty (20) minutes, with no perceptible drop in pressure. The test shall be made using air pressure only and verified in writing by the gas/mechanical contractor on forms authorized by the Department of Codes Administration witnessed and signed. Retest or additional certification, in special situations may be required by the Director of Codes Administration or by his/her duly authorized representative. The necessary apparatus for conducting the test shall be furnished by the permit holder.

J. Section G2417.4.2 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section G2417.4.2 and substituting the following:

G2416.4.2 Air Pressure Test 2 psi and greater. Gas piping 2 psi or higher pressure must stand a pressure of a least 20 psi, but never less than ten (10) times the maximum pressure to which the piping will be subjected in operation, for a period of not less than twenty (20) minutes without showing any drop in pressure.

K. Section G2427.4.1 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section G2427.4.1 and substituting the following:

G2427.4.1 Plastic Piping. Where plastic piping is used to vent an appliance, the material shall be listed and labeled in accordance with UL 1738.

L. Section G2427.4.1.1 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section G2427.4.1.1 and substituting the following:

G2427.4.1.1 Plastic Vent Joints. Plastic pipe venting materials listed and labeled in accordance with UL 1738 shall be installed in accordance with the vent manufacturer's instructions. Where primer is required, it shall be of contrasting color. (Ord. BL2025-898 § 3, 2025; Ord. BL2020-458 § 3, 2020; Ord. BL2015-1145 § 15, 2015; Ord. BL2010-679 § 1, 2010; Ord. BL2007-1373 § 4, 2007; Ord. BL 2001-703 § 4, 2001; Ord. 98-1445 §§ 52—57, 1998; Ord. 96-562 §§ 29—33, 1996; Ord. 95-1487 §§ 54—58, 1995; Ord. 92-118 § 14, 1992; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-41.2)

16.16.240 Local amendments to International Fuel Gas Code.

The following amendments, deletions, or additions to the 2024 Edition of the International Fuel Gas Code are adopted by reference, as fully as though copied into such Gas Code, and thereby made a part of the Gas Code.

A. Section 101.1 of the 2024 Edition of the International Fuel Gas Code is hereby amended by deleting Section 101.1 in its entirety.

B. Section 201 of the 2024 Edition of the International Fuel Gas Code is hereby amended by adding a new section 201.5 and substituting the following:

201.5 Interchangeability with the International Codes. The International Building Code shall be construed to mean the 2024 International Building Code. The International Property Maintenance Code shall be construed to mean the Property Internationals Code of the Metropolitan Government. The International Mechanical Code shall be construed to mean the 2024 International Mechanical Code. The International Fuel Gas Code shall be construed to mean the 2024 International Gas Code. The International Plumbing Code shall be construed to mean the 2024 International Plumbing Code. The International Private Sewage Disposal Code shall be construed to mean the

Subsurface Sewage Disposal Systems Code. The ICC Electrical Code shall be construed to mean the 2023 National Electrical Code.

C. Section 202 of the 2024 Edition of the International Fuel Gas Code is hereby amended by adding the following new definitions as follows:

ADMINISTRATIVE AUTHORITY — shall mean the Director of the Metropolitan Department of Codes Administration, his deputy or duly authorized representative.

D. Section 202 of the 2024 Edition of the International Fuel Gas Code is hereby amended by deleting the definition of "Code Official" and substituting the following:

CODE OFFICIAL — shall mean the Director of the Metropolitan Department of Codes Administration, his deputy or duly authorized representative.

E. Section 304.6.2 and Figure 304.6.2 of the 2024 Edition of the International Fuel Gas Code is hereby amended by deleting the section and figure in their entirety.

F. Section 402.7(1) of the 2024 Edition of the International Fuel Gas Code is hereby amended by deleting Section 402.7(1) and substituting the following:

1. The piping system may be threaded. Piping system over 5 psi shall be welded.

G. Section 404.4 of the 2024 Edition of the International Gas Code is hereby amended by deleting Section 404.4 and substituting the following:

404.4. Piping in solid partitions and walls. This provision shall not apply to tubing which pierces walls, floors, or partitions. Tubing shall not be run horizontally inside hollow walls or partitions unless protected along its full concealed length against physical damage. Tubing may be run vertically inside hollow walls or partitions without protection along its entire concealed length provided and the tubing is not rigidly secured.

H. Section 404 of the 2024 Edition of the International Fuel Gas Code is hereby amended by adding a new section 404.11.2(4) as follows:

404.11.2(4) Cathodic protection shall be required on metallic gas piping installed underground. The following chart may be used to determine requirement for anodes as to size and number required:

Coated Pipe				
Anode Weight	Anode Spacing In Feet			
	¾"	1"	2"	3"
1#	809'	643'	352'	238'
5#	1079'	857'	470'	317'
17#	1798'	1428'	783'	528'

Exception: Coated and wrapped metallic gas piping run underground that does not exceed thirty (30) feet in length shall not require additional cathodic protection.

I. Section 404.12 of the 2024 Edition of the International Fuel Gas Code is hereby amended by deleting Section 404.12 and substituting the following:

404.12 Minimum burial depth and clearances. Underground piping systems shall be installed a minimum depth of 18 inches (458 mm) below grade, except as provided for in 404.12.1.

J. Section 404.12 of the 2018 Edition of the International Fuel Gas Code is hereby amended by adding a new Sections 404.12.2, 404.12.3, 404.12.4 and 404.12.5 as follows:

404.12.2. Clearances. No gas piping shall be placed underground closer than eight (8) inches from a water pipe, sewer line, or any other utility service line. Underground gas piping shall be installed with enough clearance from any other underground structure to avoid contact therewith, to allow proper maintenance, and to protect against damage that might result from proximity to other structures. In addition, underground plastic piping shall be installed with sufficient clearance, or shall be insulated, from a source of heat so as to prevent the heat from impairing the serviceability of the pipe.

404.12.3. Protection against damage. Where soil conditions are unstable and settling of piping or foundation walls or heavy vehicular traffic may occur, adequate measures shall be provided to prevent excessive stressing of the piping. Piping shall be buried a sufficient depth or covered in a manner so as to protect the piping from physical damage.

404.12.4. Cover Requirements. Underground piping systems shall be installed with at least eighteen (18) inches of cover. The cover may be reduced to twelve (12) inches if external damage to the pipe is not likely to result. If minimum of twelve (12) inches of cover cannot be maintained, the pipe shall be installed in conduit or bridged (shielded).

404.12.5. Separate Ditch for Gas Piping. The laying or installing of gas piping in the same ditch with water, sewer, drainage pipe or any other utility service line is prohibited except when approved by the administrative authority.

K. Section 404.13 of the 2024 Edition of the International Fuel Gas Code is hereby amended by deleting Section 404.13 and substituting the following:

404.13 Trenches. The trench shall be graded so that the pipe has a firm, substantially continuous bearing on the bottom of the trench. Where flooding of the

trench is done to consolidate the backfill, care shall be exercised to see that the pipe is not floated from its firm bearing on the trench bottom.

L. Section 404.17.1 of the 2024 Edition of the International Fuel Gas Code is hereby amended by adding Section 404.17.1 Exception 4.

4. Plastic piping shall not be used for consumer's gas piping when operating pressures are in excess of 2 psi, unless approved by the Director of Codes Administration or his duly authorized representative.

M. Section 406.2 of the 2024 Edition of the International Fuel Gas Code is hereby amended by deleting Section 406.2 and substituting the following:

406.2 Test medium. The test medium shall be air, nitrogen, or carbon dioxide or an inert gas. Oxygen shall not be used. Fuel gas may be used in piping systems operating at pressures of one half (½) pound per square inch or less.

N. Section 406.4 of the 2024 Edition of the International Fuel Gas Code is hereby amended by deleting Sections 406.4.1 and 406.4.2 and substituting the following:

406.4.1. Method of Testing. Low pressure (not in excess of 0.5 psi) gas piping shall withstand a pressure of at least 10.0 psi for a period of not less than twenty (20) minutes without showing any drop in pressure. For 2 psi or higher-pressure piping must stand a pressure of at least 20 psi, but never less than ten (10) times the maximum pressure to which the piping will be subjected in operation, for a period of not less than twenty (20) minutes without showing any drop in pressure. An overnight test of larger piping systems may be required. The test shall be verified in writing on forms authorized by the Department of Codes Administration witnessed and signed. Retest or additional certification, in special situations, may be required by the Director of Codes Administration or by his/her duly authorized representative. Necessary apparatus for conducting the test shall be furnished by the permit holder.

O. Section 410.1 of the 2024 Edition of the International Fuel Gas Code is hereby amended by adding Section 410.1 and 410.1.2. as follows:

410.1.1. Shutoff value. An accessible gas shutoff valve shall be provided upstream of each gas pressure regulator. Where two gas pressure regulators are installed in series in a single gas line, a manual valve is not required at the second regulator.

410.1.2 Venting of Pressure Regulators. A vent line(s) from a gas appliance pressure regulator and a bleed line(s) from a diaphragm type valve shall not be connected to a common manifold terminating in a combustion chamber. Vent lines shall not terminate in positive pressure type combustion chambers.

P. Chapter 4 of the 2024 Edition of the International Fuel Gas Code is hereby amended by adding a new Section 417 as follows:

Section 417

2# PSI Piping System.

417.1 General. 2 psi gas piping systems designed in accordance with this section and other requirements of this code are intended for use where the building service regulator has been set to deliver gas at 2 psi. Piping systems shall be designed to allow a maximum pressure drop of one and one-half (1½) psi between the meter and the regulator that reduces the pressure to seven (7) inch w.c. Piping systems shall be further designed to allow up to one (1) inch w.c. pressure drop between the above first cut regulator and the appliance or the appliance regulator if used.

417.2 Gas Piping Materials. All piping shall be metallic material only, and comply with 403. Piping installed for 2 psi pressure shall be (1) type L copper tubing, (2) refrigeration service tubing having a wall thickness of not less than .030", (3) corrugated stainless steel conduit, (4) iron pipe. All piping and tubing shall be sized so as to not exceed the capacities shown on tables 1003A, 1003B, or 1003C. Iron pipe already in service may be retained. Aluminum tubing will not be installed or used for this service. All horizontal tubing shall be supported at approximately four (4) foot intervals.

417.3 Marking. All piping in the 2 psi portion of the system shall be marked at the beginning, all ends with a metal tag stating "2 psi." All such tubing or piping must also be marked at intervals not to exceed six (6) feet with approved means of identification designating 2 psi gas pressure.

417.4 Piping in Partitions. When copper tubing is installed in a hollow partition in a new piping installation, a metallic sleeve, or equivalent means, shall be used to protect the tubing where it passes through a wood plate or other structural member of the wall. The sleeve, if used, shall extend at least four (4) inches on either side of the structural member in the partition. Iron pipe may be used for the sleeve. The ends must be reamed to avoid sharp edges which may come in contact with copper tubing. Tubing in the partition shall have some slack. Concealed tubing joints are prohibited.

417.5 General Piping. All fuel lines from the meter shall pass through the foundation with iron pipe, then a pipe to flare adapter may be installed for the copper tubing. In such case that the piping system cannot

pass through the foundation, iron pipe will run from the meter to the outside wall of structure and attach with suitable pipe straps then adapt to copper tubing. Installation procedures must guard against dirt, tubing cutting chips, or other material entering the fuel line. Blow out lines before connecting and testing.

417.6 Joints and Fittings, Tubing. All joints and fittings in 2 psi tubing shall be made with International SAE heavy duty short shoulder flare fittings having a forty-five (45) degree flare. All joints and fittings in 2 psi corrugated stainless steel conduit shall be made with approved fitting design for that system. Brazed or silver soldered joints made with an alloy having a melting temperature in excess of 1000 degrees Fahrenheit are permitted. Soft solder joints are not permitted. All joints in existing copper tubing must be inspected and tested before being used for 2 psi service. All soft solder joints will be replaced with a flare fitting or with a silver solder joint. All bends should be smooth without any binds in tubing. Bending springs or tubing benders should be used.

417.7 MP Regulators. MP pressure regulators installed in the 2 psi portions of the piping shall comply with the following provisions:

417.7.1 The MP regulator shall comply with Sections 402.1 and 402.13 and shall be stated by its manufacturer as being suitable for the inlet and outlet gas pressures for which it is to be used.

417.7.2. The MP regulator shall maintain a reduced outlet pressure under lock-up (no flow) conditions and shall be so installed on the piping system that they cannot be concealed by building construction.

417.7.3. The capacity of the MP regulator, determined by published ratings of its manufacturer, shall be adequate to supply the appliances served by it.

417.7.4. The MP pressure regulator shall be accessible for servicing and may be located either indoors or outdoors. When located indoors, the regulator shall be vented to outdoors or equipped with a vent limiting device, in either case complying with Section 410.3.

417.7.5. The service regulator shall be set to deliver 2 psi, with flow of 30 CFH, after which the adjusting cap shall be sealed with a copper wire and lead seal. The regulator will be marked with a red cap and a metal tag stating 2 psi attached. The gas meter will be installed with a Red index indicating 2 psi system.

417.8 The regulator which reduces the pressure from 2 psi to seven (7) inch w.c. shall be located as close as practical to the appliance which it serves. This regulator must be installed where it cannot be concealed by building construction. The 2 psi to seven (7) inch w.c. regulator must be vented to the outside atmosphere or must be equipped with a vent limiter device. When installed for one appliance only, the preferred location of the regulator and its shut off cock is above the floor level and immediately adjacent to the appliance it serves.

417.9 Appliance regulators, when used, may be installed on or adjacent to the appliance manifold. Appliance regulators are not required on manually operated room heaters, ranges or similar appliances not equipped with a pilot. A pipe nipple at least six (6) inches long, or equivalent tubing, must be installed between the 2 psi to seven (7) inch w.c. regulator and the appliance regulator. Existing appliance regulator shall be retained on any appliance, unless defective.

417.10 Manual Shutoff Valve. Where there is more than one MP regulator in the complete piping system served by one meter, a listed shutoff valve shall be installed immediately ahead of each MP regulator. A listed shutoff valve shall be installed ahead of each 2 psi to seven (7) inch w.c. regulator. Individual runs of tubing may be made to each appliance from a manifold. The cocks may be at the manifold, but they must be easily accessible and identified as to the appliance served.

Q. Section 502 of the 2024 Edition of the International Fuel Gas Code is hereby amended by adding a new Section 502.8 as follows:

502.8 Marking.

502.8.1 In those localities where solid and liquid fuels are used extensively, gas vents shall be plainly and permanently identified by a label attached to the wall or ceiling at a point where the vent connector enters the gas vent.

502.8.2 The label shall read: This gas vent is for appliances which burn gas. Do not connect to solid or liquid fuel-burning appliances or incinerators.

502.8.3 The authority having jurisdiction shall determine whether its area constitutes such a locality.

R. Section 503.1 of the 2024 Edition of the International Fuel Gas Code is hereby amended by adding a new Sections 503.1.1 and 503.1.2 as follows:

503.1.1 Equipment Not required to be Vented.

a. Listed ranges.

b. Built-in domestic cooking units listed and marked for optional venting.

c. Listed hot plates and listed laundry stoves.

d. Listed Infrared Radiant heaters (see Section 516.1.1).

e. A single listed booster type (automatic instantaneous) water heater, when designed and used solely for the sanitizing rinse requirements of a National Sanitation Foundation Class 1, 2, or 3 dishwashing machine, provided

that the input is limited to 50,000 Btu per hour, the storage capacity is limited to 12.5 gallons, and the heater is installed, with the draft hood in place and unaltered, in a commercial kitchen having a mechanical exhaust system. When installed in this manner, the draft hood outlet shall not be less than thirty-six (36) inches vertically and six (6) inches horizontally from any surface other than the heater.

f. Listed refrigerators.

g. Counter appliances.

h. Room heaters listed for unvented use shall not be installed in bathrooms or bedrooms and in institutions such as homes for the aged, sanitariums, convalescent homes, orphanages, etc.

i. Direct gas-fired make-up air heaters.

j. Other equipment listed for unvented use and not provided with flue collars.

k. Specialized equipment of limited input such as laboratory burners or gas lights.

503.1.2. When any or all of this equipment is installed so the aggregate input rating exceeds 20 Btu per hour per cubic foot of room or space in which it is installed, one or more shall be provided with venting systems or other approved means for removing the vent gases to the outside atmosphere so the aggregate input rating of the remaining unvented equipment does not exceed the 20 Btu per hour per cubic foot figure. When the room or space in which the equipment is installed is directly connected to another room or space by a doorway, archway, or other opening of comparable size which cannot be closed, the volume of such adjacent room or space may be included in the calculations.

S. Section 503.4.1 of the 2024 Edition of the International Fuel Gas Code is hereby amended by deleting Section 503.4.1 and substituting the following:

503.4.1 Plastic Piping. Where plastic piping is used to vent an appliance, the material shall be listed and labeled in accordance with UL 1738.

T. Section 503.4.1.1 of the 2024 Edition of the International Fuel Gas Code is hereby amended by deleting Section 503.4.1.1 and substituting the following:

503.4.1.1 Plastic Vent Joints. Plastic pipe venting materials listed and labeled in accordance with UL 1738 shall be installed in accordance with the vent manufacturer's instructions. Where primer is required, it shall be of contrasting color.

U. Section 602 of the 2024 Edition of the International Fuel Gas Code is hereby amended by adding the following new Section 602.4:

602.4 Installations requirements. A decorative appliance for installation in a vented fireplace shall be installed only in a vented fireplace having a working chimney flue and constructed of noncombustible materials. These appliances shall not be thermostatically controlled.

602.4.1. A listed decorative appliance for installation in a vented fireplace shall be installed in accordance with its listing and the manufacturer's instructions.

602.4.2. An unlisted decorative appliance for installation in a vented fireplace shall be installed in a fireplace having a permanent free opening, based on appliance input rating and chimney height, equal to or greater than that specified in Table 634.1

V. Section 624.1.1 of the 2024 Edition of the International Fuel Gas Code is hereby amended by deleting Section 624.1.1 substituting the following and adding Sections 624.1.2 and 624.1.3:

624.1.1 Installation requirement. Water heaters other than the direct vent type shall be located as close as practicable to the chimney or gas vent. They should be so located as to provide short runs of water piping to the water heaters.

624.1.2 All gas water heaters installed in attics, on combustible floors or in remote locations shall rest in pans of minimum 0.0276-inch (24 ga.) galvanized sheet steel or equivalent with minimum depth of two (2) inches and shall have a minimum clearance from the water heater of two (2) inches on all sides: the pan shall be a sufficient size to receive all drippings or condensation from such water heaters. All drain pans shall have a minimum one (1) inch drain. No plastic pans will be permitted (See Section 504.7 of the International Plumbing Code for other safety pan requirements).

Exception: Water heaters shall not be located in unheated and un-insulated spaces except in unheated basements and garages. (Ord. BL2025-898 § 3, 2025; Ord. BL2020-458 § 3, 2020; Ord. BL2015-1145 § 16, 2015; Ord. BL2007-1390 § 11, 2007; Ord. BL2002-1142 § 20, 2002; Ord. 98-1445 §§ 58—68, 1998; Ord. 95-1487 §§ 59—83, 1995; Ord. 92-118 §§ 15,16, 1992; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-41.3)

16.16.250 Liquefied Petroleum Gases Code—Local amendments.

Reserved. (Ord. BL2025-898 § 3, 2025; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-41.4)

16.16.260 International Mechanical Code—Local amendments modified.

The following amendments, deletions, or additions to the 2024 Edition of the International Mechanical Code are adopted by reference, as fully as though copied into such Mechanical Code, and thereby made a part of the Mechanical Code.

A. Section 101.1 of the 2024 Edition of the International Mechanical Code is hereby amended by deleting Section 101.1 in its entirety.

B. Section 103.1 through 115.4 of the 2024 Edition of the International Mechanical Code is hereby amended by deleting Section 103.1 through 115.4 in its entirety.

C. Section 201 of the 2024 Edition of the International Mechanical Code is amended by adding a new section 201.5 and substituting the following:

201.5 Interchangeability with the International Codes. The International Building Code shall be construed to mean the 2024 International Building Code. The International Property Maintenance Code shall be construed to mean the Property Code of the Metropolitan Government. The International Mechanical Code shall be construed to mean the 2024 International Mechanical Code. The International Fuel Gas Code shall be construed to mean the 2024 International Fuel Gas Code. The International Plumbing Code shall be construed to mean the 2024 International Plumbing Code. The International Private Sewage Disposal Code shall be construed to mean the Subsurface Sewage Disposal Systems Code. The ICC Electrical Code shall be construed to mean the 2023 National Electrical Code.

D. Section 202 of the 2024 Edition of the International Mechanical Code is hereby amended by adding the following new definition of as follows:

ADMINISTRATIVE AUTHORITY — shall mean the Director of the Metropolitan Department of Codes Administration, his deputy or duly authorized representative.

E. Section 202 of the 2024 Edition of the International Mechanical Code is hereby amended by deleting the definition of "Code Official" and substituting the following:

CODE OFFICIAL — shall mean the Director of the Metropolitan Department of Codes Administration, his deputy or duly authorized representative.

F. Section 601 of the 2024 International Mechanical Code is hereby amended by adding a new Section 601.6 as follows:

601.6 Insulation required. All ductwork installed in non-conditioned and not completely conditioned areas such as crawl, attic and the floor/ceiling assembly shall be insulated. (Ord. BL2025-898 § 3, 2025; Ord. BL2024-495 § 1, 2024; Ord. BL2020-458 § 3, 2020; Ord. BL2015-1145 § 17, 2015; Ord. BL2010-679 § 2, 2010; Ord. BL2007-1390 § 12, 2007; Ord. BL2002-1142 § 21, 2002; Ord. 98-1445 §§ 69—73, 1998; Ord. 95-1487 § 84, 1995; Ord. 92-118 §§ 17, 1992; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-41.5)

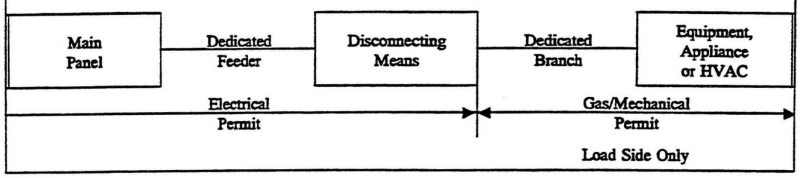
16.16.270 Equipment, appliances and/or HVAC&R units.

Reserved. (Ord. BL2025-898 § 3, 2025; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-42)

16.16.280 Electrical connections.

All equipment, appliances and/or HVAC&R units must be installed and wired in accordance with the applicable chapter of the National Electrical Code. The master mechanical, HVAC&R or gas and appliance contractor shall be permitted to install equipment and connect the electrical wiring from the last disconnecting means provided by a licensed metropolitan electrical or equipment installer contractor that is dedicated for the purpose of supplying the electrical source to the said equipment. (Ord. BL2025-898 § 3, 2025; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-42.1)

Table 16.16.280
ELECTRICAL CONNECTIONS



16.16.290 Plumbing connections.

The certificate holder shall be permitted to connect HVAC&R, mechanical equipment or appliances to the water supply provided by a metropolitan plumbing contractor and to connect condensate drain piping to properly trapped plumbing drainage system in accordance with the Standard Plumbing Code. (Ord. BL2025-898 § 3, 2025; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-42.2)

16.16.300 Gas connections—Adequate air supply required.

Any person, certificate holder, firm or corporation shall not connect a fuel line to any gas utilization equipment that does not have an adequate supply of air for ventilation and combustion as required by the metropolitan gas/mechanical code. (Ord. BL2025-898 § 3, 2025; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-43)

16.16.310 Gas connections—By whom.

Under no circumstance shall anyone not employed by the gas utility be permitted to open or make connections to a gas main, service pipe or service extension, or set or remove the meter, or do any work on any part of the gas supply system including the meter (except that gas may be turned off at the meter in case of leak, fire, or hazardous conditions). Where the meter has been turned off, the gas utility shall be notified and, after repairs have been made and approved, the meter shall be turned on and service restored by an employee of the gas utility. (Ord. BL2025-898 § 3, 2025; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-44)

16.16.320 Fuel gas installations and operating pressures.

A. Fuel gas installations shall include, natural gas, manufactured gas, liquified petroleum gas-air mixtures and mixtures of those gases, plus gas-air mixtures within the flammable limit of a mixture being a commercially distributed product.

B. For other than undiluted LP gas systems, installations shall be from the point of delivery (outlet of the service meter assembly) to the connections of each gas utilization device.

C. For undiluted LP gas systems, installations shall be from the point of delivery (outlet of the first stage regulator).

D. Gas-air mixtures piping systems within the flammable range shall be limited to a maximum operating pressure of 10 psi without permission of the director of codes administration or his duly authorized representatives.

E. Natural gas piping systems shall be limited to seven inches of water column. Systems of two pounds or greater for new installations, shall require written approval from the local gas utility company.

F. LP (vapor) piping systems shall be limited to fifteen inches of water column without prior approval of liquified petroleum supplier. (Ord. BL2025-898 § 3, 2025; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-45, 19-1-45.1—19-1-45.5)

16.16.330 Work not requiring contractor's license—Permit required.

A metropolitan plumbing contractor may install gas piping and hot water heaters only without a gas/mechanical contractor's license but are required to obtain a gas/mechanical permit for such installation. Any other appliance connected to the gas piping would require the installation to be performed by a metropolitan master mechanical, HVAC&R or gas and appliance contractor. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-46)

Article III. Permits

16.16.340 Required when—Exceptions.

A. A gas/mechanical permit shall be obtained from the department of codes administration prior to the installation of consumer's gas piping, gas appliances and related accessories, mechanical systems, including alterations, replacement, equipment, appliances, fixtures, fittings and/or appurtenances, including ventilating, heating, cooling, air conditioning and refrigeration systems, incinerators, radon gas reduction systems and any other energy-related systems.

B. A permit shall be required for replacement but not repair of any gas or mechanical appliance. All work must be performed by a metropolitan gas/mechanical contractor or a homeowner as per Section 16.16.070.

C. In one- and two-family dwellings, a gas/mechanical permit shall not be required for bathroom exhaust fans, dryer vents, and recirculating kitchen exhaust systems or replacement of nonducted nonvented appliances or hot water heaters and dryers less than seventy-five thousand Btuh (input).

D. Gas/mechanical permits shall not be required for:

1. Any portable heating appliance;
2. Any portable ventilating equipment;
3. Any portable cooling unit;
4. Any steam, hot or chilled water piping within any heating or cooling equipment regulated by this code;
5. Any portable evaporative cooler;

6. Any self-contained refrigeration system containing ten pounds or less of refrigerant and actuated by motor or compressor of less than one horsepower.

E. Exceptions: Window units or through-the-wall heating and/or cooling units in residential buildings with five or more units or in commercial buildings where these units are the primary source of heating and/or cooling require a permit. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-55)

16.16.350 Registration as metropolitan master contractor required—Exception.

A. A permit to install, enlarge, alter, move, improve, convert or replace any gas system or mechanical system, or cause the same to be done shall not be issued to any person, firm or corporation unless such person, firm or corporation has been duly registered by the department of codes administration as a metropolitan master mechanical, HVAC&R or gas and appliance contractor except as provided below:

B. The director of codes administration or his duly authorized representative shall be authorized to issue "homeowner permits" to property owners desiring to make mechanical repairs and/or additions to their property or improvements thereto. Homeowner permits shall be issued only if the applicant meets the conditions of Section 16.16.070. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-56)

16.16.360 Application—Signature of certificate holder.

Application for a gas/mechanical permit shall be made in writing on forms provided by the director of codes administration. Each applicant entitled to receive a gas/mechanical permit shall submit such information as required on the permit application forms. The certificate holder shall sign all and only applications for the metropolitan gas/mechanical contractor with whom his/her certificate is registered. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-57)

16.16.370 Plans and specifications—Requirements.

A. Detailed plans and specifications shall be provided to define the nature and character of the work to be performed and to identify the type, grade and size of the materials, devices, equipment, and fixtures to be installed. The applicant for a gas/mechanical permit shall furnish such plans and specifications with the application for such permit. Such plans shall be drawn to scale and all plans and specifications shall be triplicate.

B. No plans shall be required for one- and two-family dwellings.

C. Plans shall indicate how required fire-resistive integrity will be maintained where a penetration of a wall, floor or partition will be made fire-resistive for gas/mechanical conduits, ducts, pipes and systems.

D. All drawings, specifications and accompanying data shall bear the name and address of the designer. When required by state law, such designer of the gas/mechanical plans shall be an architect or engineer legally registered under the laws of the state and shall affix his or her official seal to said drawings, specifications and accompanying data. (Ord. 90-1253 § 1 (part), 1990; prior code §§ 19-1-58, 19-1-58.1)

16.16.380 Examination of applications.

The director of codes administration shall examine or cause to be examined each application for a gas/mechanical permit and the plans and specifications submitted therewith and shall determine by such examination whether the gas or mechanical installation, gas or mechanical system, device, equipment, fixtures, etc., as indicated and described, are in accordance with the provisions and requirements of this chapter and other pertinent laws and ordinances. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-59)

16.16.390 Plans and specifications—Reviewed—Copy at jobsite.

Each set of plans and specifications shall be properly marked "Reviewed," with one set being returned to the applicant with the permit and one set to be retained as a record in the offices of the department of codes administration. A copy of the reviewed plans and specifications shall be kept at the job site at all times during the progress of work. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-60)

16.16.400 Fee schedule—Gas/mechanical permits and classification of appliances.

A. No gas/mechanical permit shall be held valid until the fees prescribed in this section shall have been paid, nor shall an amendment or change to an existing permit be approved until such additional fees as may be due shall have been paid.

B. Permit fees for the installation of gas/mechanical systems, devices, equipment and fixtures, including but not limited to the installation of fixtures, repairs and alterations to existing gas/mechanical installations and systems, shall be as follows:

1. Fee schedule.

Minimum fee (each permit). . . .	$75.00
*Gas and/or mechanical appliance (each in excess of first appli-	

ance), residential	$11.00
*Gas and/or mechanical appliance (each in excess of first appliance), commercial	$16.00
Gas meter connection.	$11.00
Hot water heater	$21.00
Fuel Piping (under ground fuel lines)	$50.00
Re-inspection fee (each)	$50.00

*Each appliance outlet shall be counted as one appliance in figuring the total permit fee, whether or not the appliance is actually installed at the time the gas/mechanical system is installed.

2. In addition, fees for heating, ventilating, ductwork (installation without heating/cooling equipment), air-conditioning and refrigeration systems or alterations or replacement and/or additions shall also be based upon total Btuh and/or kilowatts input of all appliances at the rate of thirty-two dollars per one hundred thousand Btuh or fraction thereof.

C. The classifications listed below shall each be counted as one fixture, equipment or appliance:

Air-conditioning unit;
Air handling unit;
Alt. fuel system;
Boiler;
Broiler;
Collector, dust etc.;
Condensing unit or condenser;
Cooling tower;
Conversion burner;
Dryer;
Duct heater;
Duct system;
Exhaust fan, hood;
Factory built fireplace or insert;
Fire or smoke damper;
Fryer;
Furnace;
Gas logs unit;
Gas piping;
Grill or griddle;
Heat exchanger;
Humidifier or dehumidifier;
Incinerator;
Infrared heater;
Make up air unit;
Oven;
Package unit;
Pool or sauna heater;
Power venter;
Radon removal system;
Range or cook top unit;
Recirculating fan unit;
Refrigeration unit;
Rooftop unit;
Room heater;
Stationary gas engines, turbines;
Stove, solid fuel or laundry;
Tank, oil or LP;
Unit heater;
Water heater or circulation tank.

D. Workforce housing fee adjustments.

1. In order to facilitate the provision of workforce housing within the area of the metropolitan government, the permit fees provided in subsection B. of this section shall be reduced by twenty-five percent for new home construction, or the rehabilitation of existing dilapidated and vacant homes, to be used for workforce housing.

2. For purposes of this subsection, "workforce housing" means housing that meets one of the following two criteria:

a. Housing to be sold at a price at or below two and one-half times ninety-five percent of the median family income currently listed for Davidson County as established by the U.S. Department of Housing and Urban Development; or

b. Housing to be rented for at least five years at an annual rental amount that is at or below thirty percent of seventy percent of the median family income currently listed for Davidson County as established by the U.S. Department of Housing and Urban Development.

3. The director shall have the authority to promulgate rules and regulations to implement the provisions of this subsection, provided such rules and regulations are not inconsistent with the express provisions of this subsection. Applicants obtaining the twenty-five percent reduction in permit fees for workforce housing shall provide the director with a sworn affidavit that the residences constructed will satisfy the criteria set forth above and shall file a deed restriction with the Davidson County Register of Deeds requiring that the property remain a workforce housing unit for at least five years. In the event the property does not remain a workforce housing unit for at least five years, the permit holder shall pay to the Metropolitan Government the amount of the permit fee reduction provided above plus interest at the rate of ten percent per annum. (Ord. BL2022-1215 § 3, 2022; Ord. BL2010-788 § 1, 2010; Ord. BL2010-642 § 7, 2010; Ord. BL2004-175 § 2, 2004; Ord. 92-118 §§ 18, 19, 1992; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-61)

16.16.410 Failure to obtain permit—Fees tripled.

In addition to any other penalty imposed for failure to obtain a permit, when work on any gas, gas/mechanical installation or gas/mechanical system requiring a permit is commenced prior to the issuance of the required permit, the permit fee for such work shall be tripled; provided, that the triple fee penalty shall not be applied when, in the opinion of the director of codes administration, an emergency existed. (Ord. 91-1527 § 2, 1991; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-62)

16.16.420 Issuance.

Upon approval of the application for a gas/mechanical permit and the plans and specifications submitted therewith, the director of codes administration shall issue or cause to be issued a permit therefor to the applicant. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-63)

16.16.430 Refusal—Written statement.

In such instances where it has been determined that the application for a gas/mechanical permit shall be refused, the plans and specifications shall be returned to the applicant with a statement setting forth the reasons for such refusal. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-64)

16.16.440 Authority of permit.

A. The issuance of a mechanical permit shall be construed as the authority to proceed only with the work specified and reviewed as shown by plans and specifications, and shall not in any manner be construed as the authority to violate, cancel, alter, change or set aside any of the provisions of this chapter, nor to do or perform any work or make any installation not specifically covered by the approved plans and specifications upon which the permit was issued.

B. The issuance of a gas/mechanical permit shall not prevent nor prohibit the director of codes administration from thereafter requiring the correction of errors or omissions in the plans and specifications or in the gas/mechanical installation or of violations of this chapter.

C. The gas/mechanical contractor shall be responsible for notifying the gas/mechanical inspector of any change in plans. The inspector may require the change in plans to be submitted for review as per Section 16.16.380. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-65)

16.16.450 Expiration—Extension.

Any gas/mechanical permit issued shall become invalid unless the work authorized by such permit shall have been commenced within six months after the date of issuance, or if the work so authorized is suspended or abandoned for a period of one year after the time the work is commenced. In no case shall a permit be valid for more than two years after its issuance; provided that for cause, if the work authorized by it is sufficiently under way and is diligently pursued, the director of codes administration may, for justifiable cause, grant one or more extensions of time for periods not exceeding ninety days each. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-66)

16.16.460 Nontransferability—Refunds.

Permits issued under this chapter are not transferable from one contractor, one job, site or location to another, and any refunds shall be made in accordance with Section 16.16.480. This provision shall not prohibit the correction or change of addresses, location or contractor made through error on the application. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-67)

16.16.470 Change in contractor—Reissuance of permit—Fees.

When a change in a contractor occurs before a job is completed, the gas/mechanical contractor who obtains the permits, shall notify the gas/mechanical official in writing. A new permit shall be taken out for the unfinished construction. If the permit fee for the original construction was not refunded, the gas/mechanical contractor that completes the construction shall pay a fee based the administrative costs to process the permit that shall be no less than the minimum permit fee. If the permit fee for the original construction has been refunded, the gas/mechanical contractor that completes the construction shall pay a full permit fee based upon the construction. (Ord. BL2025-1101 § 3, 2025; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-67.1)

16.16.480 Fees—Refunds.

A. Application for a refund of fees paid for any unused permit issued under the provisions of this chapter shall be made on forms provided by the director of codes administration.

B. Refunds shall only be made for that portion of a fee exceeding seventy-five dollars. In no case shall any fee be refunded on any unused permit over six months old or when any inspection has been made, regardless of the fees paid. (Ord. BL2025-1101 § 4, 2025; Ord. BL 2010-642 § 8, 2010; Ord. 91-1527 § 3, 1991; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-68)

Article IV. Inspections

16.16.490 Required when.

All new gas/mechanical installations and gas/mechanical systems and such portions of an existing gas/mechanical system as may be affected by new gas/mechanical installations or changes, for which a permit is required, shall be inspected to assure compli-

ance with the requirements of this chapter and to assure that the installation and construction of the gas/mechanical system is in accordance with the reviewed plans and specifications. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-74)

16.16.500 Alteration of existing system.

Before issuing a permit the gas/mechanical official may examine or cause to be examined any gas system or mechanical system for which an application has been received for a permit to enlarge, alter, repair, move, replace or change a gas or mechanical system. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-73)

16.16.510 Inspection test—Permittee's responsibility.

It shall be the responsibility of the person to whom a gas/mechanical permit has been issued to assure that the gas or mechanical installation made will stand the test prescribed before making a request of the department of codes administration for test and inspection. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-77)

16.16.520 Time schedule.

Upon notification from the certificate holder or gas/mechanical contractor, codes administration gas/mechanical inspectors shall make the following inspections of gas/mechanical systems:

A. Rough Piping Inspection. The rough piping inspection is to be made after trenches or ditches are excavated and all new fuel piping authorized by the permit has been installed, and before any such piping has been backfilled or covered or concealed or any fixtures or gas appliances have been connected.

B. Final Piping Inspection. The final piping inspection is to be made after all gas piping authorized by the permit has been installed and after all portions have been concealed and before any fixtures or gas appliances have been connected. This inspection shall include a pressure test.

C. Rough-In Inspection. The rough-in inspection is to be made after the roof, framing, draftstopping, fireblocking and bracing are in place, all ducting and other concealed components are complete and in place and prior to the installation of wall or ceiling membranes.

D. Final Inspection. The final inspection is to be made after building is complete, the gas/mechanical systems are in place and properly connected, and the structure is ready for occupancy. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-75)

16.16.530 Notice to director that work is ready for inspection.

It shall be the duty of the person to whom a gas/mechanical permit is issued to give reasonable advance notice to the department of codes administration when the gas or mechanical work for which a permit has been issued is ready for test and inspection. Inspection is to be performed without unreasonable or unnecessary delay of request. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-76)

16.16.540 Retesting and reinspection—Fee.

When the gas or mechanical installation does not pass the required inspections, the permittee shall be required to make the necessary changes and corrections and to submit the gas or mechanical installation to reinspection within ten working days after rejection. In all instances where reinspections are deemed necessary, an additional fee of twenty-five dollars shall be paid for each reinspection required. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-78)

16.16.550 Notice of approval.

Upon satisfactory completion of the rough-in inspection and testing of a gas/mechanical installation, notice of approval of such installation shall be posted within the building. Such notice shall be dated and properly signed by the person making the inspection. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-79)

16.16.560 Notice of rejection.

A. In the event of failure of a gas/mechanical installation to pass the required tests and inspection, notice of such failure shall be given the permittee and contractor and a gas/mechanical rejected notice shall be placed within the building, pending a reinspection and testing.

B. It is unlawful for any person to remove a gas/mechanical rejected notice prior to satisfactory completion of the reinspection testing.

C. When an inspection is rejected, codes administration will do two things:

1. Place rejected notice at jobsite;

2. Give notice to permittee. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-80)

16.16.570 Certificate of approval.

A. Upon satisfactory completion and final test of gas/mechanical system, notice of approval of such installation shall be posted within the building. Such notice shall be dated and properly signed by the person making the inspection.

B. After passing inspection, a certificate of approval may be issued by the director of codes administration, upon the request of the permittee or owner. The local gas utility shall be notified of system completion. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-81)

16.16.580 Temporary certificate of approval.

A temporary certificate of approval may be issued for a portion or portions of a gas/mechanical system which may safely be operated prior to final completion of the gas/mechanical system. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-82)

Article V. Certification of Contractors

16.16.590 Classifications of certificates—Enumerated.

For the purposes of this chapter, every person engaged in or desiring to engage in the business of gas or mechanical or in the performance of any gas or mechanical work or the making of any gas/mechanical installation for which a permit is required, within the metropolitan government area shall be registered and certified by the board of gas/mechanical examiners and appeals in one of the following classifications:

A. Metropolitan master mechanical certificate;

B. Metropolitan HVAC&R certificate;

C. Metropolitan gas and appliance certificate. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-90)

16.16.600 Classifications—Defined.

For the purpose of this chapter, the classifications of gas/mechanical certificate holders shall be defined as follows:

A. "Metropolitan master mechanical certificate holder" means an individual who has successfully completed the required metropolitan master mechanical certificate examination and holds a current and valid master mechanical certificate duly issued by the metropolitan board of gas/mechanical examiners and appeals.

B. "Metropolitan HVAC&R certificate holder" means an individual who has successfully completed the required HVAC&R certificate examination and holds a current and valid metropolitan HVAC&R certificate duly issued by the metropolitan board of gas/mechanical examiners and appeals.

C. "Metropolitan gas and appliance certificate holder" means an individual who has successfully completed the required gas and appliance certificate examination and holds a current and valid metropolitan gas and appliance certificate duly issued by the metropolitan board of gas/mechanical examiners and appeals. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-91)

16.16.610 Examination, certification and registration required.

It is unlawful for any person to engage in the business of gas/mechanical contracting without first having been examined and certified. An application shall not be accepted by the board within twelve months after any notification of the board of a person, firm or corporation engaging in the business of gas/mechanical or performing any gas or mechanical work or making any gas or mechanical installation without having been first examined, certified and registered as such by the board of gas/mechanical examiners and appeals. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-92)

16.16.620 Application—Duty of contractor—Prerequisites.

A. It shall be the duty of every person engaged in or desiring to engage in the business of gas/mechanical to do or perform any gas or mechanical work or to make any gas or mechanical installation as a master mechanical certificate holder, HVAC&R certificate holder, or gas and appliance certificate holder to make application to the board of gas/mechanical examiners and appeals for an examination and issuance of a certificate of registration. Application for an examination and certificate of registration shall be made on forms provided by the director of codes administration and shall be accompanied by the required examination fee.

B. In addition to the foregoing requirements, each applicant for examination for a gas/mechanical certificate must furnish evidence that he/she had experience in gas/mechanical trades. A degree in mechanical engineering may be accepted in lieu of the experience requirement.

C. In the case of an application for examination for a master mechanical certificate an applicant must have six years experience; for HVAC&R certificate, an applicant must have four years experience. In the case of an application for examination for a gas and appliance certificate, an applicant must have three years experience.

D. Each applicant shall be available full time at least three and one half days per week during normal business hours at the gas/mechanical contractor's place of business located in Davidson County to supervise all work done under the certificate and meet with code officials during normal business hours. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-93)

16.16.630 Limited certificate.

Reserved. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-93.1)

16.16.640 Examination—Notice of.

Each applicant for examination and certification as a certificate holder shall be notified, in writing, by the secretary of the board of gas/mechanical examiners and appeals as to the time and place of such examinations, not less than seven days prior to the date scheduled for such examination. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-94)

16.16.650 Examination—Content.

An examination of each applicant for a master mechanical certificate, HVAC&R certificate or gas and appliance certificate shall be conducted by the board of gas/mechanical examiners and appeals at a time and place determined by such board. The examination shall be written and shall, in each instance, be of such nature as to satisfy the board as to the applicant's proficiency in the art of gas and mechanical installations and his knowledge of the provisions and material requirements of this chapter and any subsequent amendments made thereto, as such are related to the applicant's request for certification. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-95)

16.16.660 Examination—Failure to appear.

The failure of an applicant to appear before the board of gas/mechanical examiners and appeals for examination, at the time and place scheduled for such examination, shall not be construed as denying any applicant the right to request a rescheduling of such examination at a later date; except, that no application for examination and certification shall be held pending by the board, except for just cause, for more than ninety days following receipt of such application. In the event an applicant, after due notice, shall fail to appear before the board for examination, during such ninety day period, above, the application shall be rejected, the applicant shall be notified of the action taken by the board and the examination fee shall be forfeited. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-96)

16.16.670 Reexamination.

Any applicant for examination and certification as a certificate holder who shall fail to pass the examination as required by the board of gas/mechanical examiners and appeals may apply for reexamination within thirty days following the date of such examination. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-97)

16.16.680 Issuance—Requirements.

The board of gas/mechanical examiners and appeals shall issue a certificate in each of the following classifications when the applicant has fulfilled the following requirements:

A. A metropolitan master mechanical certificate shall be issued to every applicant who makes proper application for such certificate, successfully completes the required master mechanical certificate examination and pays the required master mechanical certificate certification fee.

B. A metropolitan HVAC&R certificate shall be issued to every applicant who makes proper application for such certificate, successfully completes the required HVAC&R certificate examination and pays the required HVAC&R certificate certification fee.

C. A metropolitan gas and appliance certificate shall be issued to every applicant who makes proper application for such certificate, successfully completes the required gas and appliance certificate examination and pays the required gas and appliance certificate certification fee. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-98)

16.16.690 Fees.

A. The fees for examination and certification of a master mechanical certificate, HVAC&R certificate, and gas and appliance certificate shall be as follows:

Classifications	Examination Fee	Original Certificate Fee	Renewal Certificate Fee
Master mechanical certificate	$50.00	$100.00	$100.00
HVAC&R certificate	50.00	75.00	75.00
Gas and appliance certificate	50.00	75.00	75.00

B. Renewal certificates for each classification shall be issued free of charge to any certificate holder over sixty-five (65) years of age. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-99)

16.16.700 Annual renewal—Penalty for failure to renew.

Each certificate issued by the board of gas/mechanical examiners and appeals shall expire on the first day of October following issuance and shall become invalid unless renewed. Such certificate shall be renewed annually and recorded in the offices of the department of codes administration, on or before the last day of September of each year. Such records shall be open to public inspection during the normal working hours of the department. There shall be, in addition to the

renewal fee set out above, a penalty of ten dollars per month for certificate holder for each month in arrears past the expiration date of said certificate, up to a maximum of twelve months. Thereafter, on the first day of the second year past expiration, the certificate shall be considered invalid and the holder shall then be considered a new applicant under Section 16.16.620. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-100)

16.16.710 Duties of certificate holders.

A. It shall be the duty of the certificate holder to assure that the gas/mechanical work for which he/she is responsible is installed in accordance with all requirements of the metropolitan gas/mechanical code in addition, the certificate holder must comply with all applicable state laws.

B. The certificate holder shall be responsible for all work for which a permit was obtained under his/her certificate and to request and secure all inspections.

C. No gas/mechanical work shall be begun until a permit has been obtained by the certificate holder.

D. It shall be the responsibility of the certificate holder and the gas/mechanical contractor to immediately notify the board in writing if his employment is terminated for any reason or he is unable to perform his duties.

E. The certificate holder shall promptly notify the gas/mechanical contractor of any deficiencies in the work as identified to him/her in writing by a metropolitan gas/mechanical inspector. It shall be the responsibility of the certificate holder to promptly correct such deficiencies in the work. A certificate holder shall not furnish permits for gas/mechanical work to any person, firm or corporation other than the registered gas/mechanical contractor with whom his/her certificate is registered.

F. Failure to comply with any of the duties listed above shall constitute grounds for suspension or revocation of the certificate holder certificate. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-101)

16.16.720 Revocation of certificate—Grounds—Notice—Recertification.

A. The board of gas/mechanical examiners and appeals shall revoke or suspend a certificate issued to any certificate holder upon positive proof that such person:

1. Knowingly violated the provisions of this chapter or the rules and regulations of the board;

2. Practiced fraud or deception in making application for or obtaining such certificate;

3. Is incompetent to perform a service to the public as a certificate holder;

4. Permitted his/her certificate to be used, directly or indirectly, by another to obtain or perform work or services;

5. Worked as a certificate holder for more than one gas/mechanical contractor;

6. Worked as a certificate holder, and pulled permits for his/her own use without the knowledge or consent of the gas/mechanical contractor with whom his/her certificate is registered;

7. Is guilty of such other unprofessional or dishonorable conduct of such nature as to deceive or defraud the public.

B. No action of the board to suspend or revoke a certificate shall become final until the alleged offender has been given an opportunity to appear before the board to show cause as to why such action should not be taken.

C. Notice, in writing, of the proposed action of the board to revoke or suspend a certificate shall be given to the holder of such certificate, stating the specific charges upon which such action is based. The notice shall stipulate that a hearing will be scheduled at a time and place set by the board for the aggrieved party to show cause why such action should not be made final. Such hearing shall not be held less than forty-eight hours following notice to the aggrieved party. Failure to appear before the board to answer the specific charges set forth in the notice shall be deemed just cause for final revocation or suspension of a certificate.

D. In the event a certificate is revoked by the board, an application for reexamination of such certificate shall not be accepted by the board within one year after the date of such revocation. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-102)

16.16.730 Inactivation of certificate upon holder's request.

Any person holding a master mechanical, HVAC&R or gas and appliance certificate may, upon his/her written request, inactivate his/her certificate and, during such period of inactivation, shall pay no renewal fees. Upon presentation of his/her affidavit that he/she intends to become active, after a waiting period of ninety days his/her certificate shall be reactivated upon payment of the current fees. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-103)

Article VI. Contractor Requirements

16.16.740 Metropolitan master mechanical contractor defined.

For the purposes of this chapter, a metropolitan master mechanical contractor who installs, repairs, services or alters any HVAC&R or gas appliances or

HVAC&R or gas systems or refrigeration, incineration and other energy consuming systems with associated ductwork and piping unlimited in capacity and size as permitted by the metropolitan gas/mechanical code shall be defined as one of the following:

A. An individual holding a current and valid metropolitan master mechanical certificate duly issued by the board of gas/mechanical examiners and appeals, who holds a current and valid contractors' license issued by the Tennessee State Board for Licensing Contractors when required, who has been duly registered as a metropolitan master mechanical contractor by the department of codes administration and has secured the required contractors' privilege license from the proper licensing authority of the metropolitan government and also has provided proper bond and certificate of insurance;

B. A person, firm, association or corporation established to do business as a metropolitan master mechanical contractor, employing the full-time services of an individual holding a current and valid master mechanical certificate duly issued by the board of gas/mechanical examiners and appeals, who holds a current and valid contractors' license issued by the Tennessee State Board for Licensing Contractors when required, who has been duly registered as a metropolitan master mechanical contractor by the department of codes administration and has secured the required contractors' privilege license from the proper licensing authority of the metropolitan government and has provided proper bond and certificate of insurance. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-108)

16.16.750 Metropolitan HVAC&R contractor defined.

For the purposes of this chapter, a metropolitan HVAC&R contractor who installs, repairs, services or alters HVAC&R appliances including gas appliances and equipment, ductwork and piping required to make a complete and operating system shall be limited to installations not to exceed the following rated (input) thirty tons, or one and one-half million Btuh, or gas piping systems not to exceed five psi pressure for the total system, shall be defined as one of the following:

A. An individual holding a current and valid metropolitan HVAC&R certificate duly issued by the board of gas/mechanical examiners and appeals, who holds a current and valid contractors' license issued by the Tennessee State Board for Licensing Contractors when required, who has been duly registered as a metropolitan HVAC&R contractor by the department of codes administration and has secured the required contractors' privilege license from the proper licensing authority of the metropolitan government and has provided proper bond and certificate of insurance;

B. A person, firm, association or corporation established to do business as a metropolitan HVAC&R contractor, employing the full-time services of an individual holding a current and valid HVAC&R certificate duly issued by the board of gas/mechanical examiners and appeals, who holds a current and valid contractors' license issued by the Tennessee State Board for Licensing Contractors when required, who has been duly registered as a metropolitan HVAC&R contractor by the department of codes administration and has secured the required contractors' privilege license from the proper licensing authority of the metropolitan government and has provided proper bond and certificate of insurance. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-109)

16.16.760 Metropolitan gas and appliance contractor defined.

A. For the purposes of this chapter, a metropolitan gas and appliance contractor who installs, repairs, services or alters gas, fuel, oil and solid fuel appliances, water heaters, unvented heaters and unit heaters including equipment and piping required to make a complete and operating system of natural gas of two psi and under to serve equipment installed; contractors who provide complete propane systems two psi and under including storage tanks may provide piping systems of up to ten psi external of the building, maximum input rating of gas appliances not to exceed seven hundred and fifty thousand Btu.

B. Exception: A public utility licensed as a gas and appliance contractor shall be allowed to install and service appliances and equipment as required by the Public Service Commission.

C. A metropolitan gas and appliance contractor shall be defined as one of the following:

1. An individual holding a current and valid metropolitan gas and appliance certificate duly issued by the board of gas/mechanical examiners and appeals, who holds a current and valid contractor's license issued by the Tennessee State Board for Licensing Contractors when required, who has been duly registered as a metropolitan gas and appliance contractor by the department of codes administration and has secured the required contractor's privilege license from the proper licensing authority of the metropolitan government and has provided proper bond and certificate of insurance;

2. A person, firm, association or corporation established to do business as a metropolitan gas and appliance contractor, employing the full-time services of an individual holding a current and valid gas and

appliance certificate duly issued by the board of gas/mechanical examiners and appeals, who holds a current and valid contractor's license issued by the Tennessee State Board for Licensing Contractors when required, who has been duly registered as a metropolitan gas and appliance contractor by the department of codes administration and has secured the required contractor's privilege license from the proper licensing authority of the metropolitan government and has provided proper bond and certificate of insurance. (Ord. 92-118 § 20, 1992; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-110)

16.16.770 Issuance of certificates to existing contractors without examination—Requirements.

A. Within one hundred and twenty days after the effective date of the bill codified in this chapter, any person, partnership, firm or corporation desiring to do mechanical or gas work covered by this chapter that has held a valid Davidson County or an adjoining county business license for at least three years from the effective date of the bill codified in this chapter, for the purpose of engaging in mechanical or gas contracting, shall make application to the metropolitan board of gas/mechanical examiners and appeals for registration, in the appropriate classification as described in this code. Said applicant must show proof to the board, that a minimum of five systems have been installed or serviced within Davidson County in the last thirty-six months from the date of application, for the classification that the applicant is applying for, upon approval by the board. The board shall authorize the issuance of said certificate without examination upon the payment of the original certificate fee, providing proper bond and certificate of insurance. Said certificate holder's certificate to expire on September 30th of the following year (but not to exceed 15 months).

B. If the applicant is an individual, the board shall authorize the issuance of the certificate in the name of the individual. If the applicant is a partnership, firm or corporation, the board shall authorize the issuance of the certificate to the member of said partnership, firm or corporation most actively engaged in the actual gas/mechanical contracting phase of the business. Only one gas/mechanical certificate may be issued under the provisions of this section, for the benefit of any said partnership, firm, or corporation. Upon proper application, said person shall be registered as a master mechanical, HVAC&R or gas and appliance certificate holder as provided in this code. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-116)

16.16.780 Registration, bonding and insurance—Requirements.

A. It shall be the duty of every person desiring to engage in the business of gas/mechanical as a metropolitan gas/mechanical contractor to register, post bond and submit certificate of insurance, as required, with the department of codes administration.

B. Each party to a joint venture shall be duly registered as a master mechanical, HVAC&R or gas and appliance contractor in accordance with this section. Each party shall be registered as the same contractor type. In addition, each party to a joint venture shall sign all applications for gas/mechanical permits.

C. It shall be the responsibility of the master mechanical contractor, HVAC&R contractor, or gas and appliance contractor to furnish to the department of codes administration a permit bond in the amount of forty thousand dollars, conditioned to conform to the requirements of this chapter and all applicable laws, ordinances, rules, and regulations of the metropolitan government relating to work which is performed by the principal pursuant to a permit issued under this bond, or for work performed by the principal for which a permit should have been obtained prior to the commencement of such activity; and to indemnify the metropolitan government and property owners against any and all loss suffered by them by reason of the failure of such contractor to comply with such laws, ordinances, rules and regulations. Such bond shall be continuous and may not be canceled without at least ten days' prior notice, in writing, to the director of codes administration. The liability of the surety shall continue to attach to work performed pursuant to any permit issued prior to the termination date of the bond even if the noncomplying act should occur after the termination date of the bond. The liability of the surety for any and all claims, suits or action under this bond shall not exceed the bond penalty of forty thousand dollars. Regardless of the number of years this bond may remain in force, the liability of the surety shall not be cumulative and the aggregate liability of the surety for any and all claims, suits or actions under this bond shall not exceed forty thousand dollars. The bond shall be issued by a U.S. Treasury-listed corporate surety or a Tennessee domestic insurance company on forms provided by the department of codes administration.

D. It shall be the responsibility of the master mechanical contractor, HVAC&R contractor or gas and appliance contractor to furnish to the department of codes administration a certificate of general liability insurance issued by a Tennessee-licensed company which provides a minimum of three hundred thousand dollars

per occurrence combined single limits for bodily injury and property damage coverage. The certification of insurance must be submitted from a Tennessee-licensed company prior to renewal of the metropolitan contractor's certificate holder annual renewal. The insurance may not be canceled without at least thirty days' prior notice, in writing to the director of codes administration. (Ord. 94-1226 § 4, 1994; Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-117)

16.16.790 Duties of gas/mechanical contractors.

A. Every person holding a gas/mechanical contractor's registration shall conform strictly to the metropolitan gas/mechanical code, and applicable state laws such as the State Contractors and/or Home Improvement Laws.

B. No gas/mechanical work shall be begun until a permit has been obtained by the certificate holder unless an emergency condition exists, in which case a permit must be obtained the next working day.

C. Before any person, firm or corporation shall engage in the business of gas/mechanical contracting as herein defined, he shall comply with all other applicable Metro ordinances.

D. The gas/mechanical contractor shall register and shall notify in writing the following with the metropolitan department of codes administration or changes to the following:

1. Name of the business, business street address and zip code, local telephone or toll free number, and individual's name as required above;

2. Name of the certificate holder, business street address and zip code, and local telephone number where the certificate holder may be contacted during normal working hours.

E. It shall be the responsibility of the gas/mechanical contractor to immediately notify the board in writing of the death, termination of employment, or extended sickness of the certificate holder.

F. In the event of death, termination of employment, extended sickness, or revocation of the certificate of the certificate holder, the gas/mechanical contractor shall secure the services of another certificate holder. The gas/mechanical contractor's registration shall be suspended until a new certificate holder is employed, subject to an appeal before the board.

G. A registered gas/mechanical contractor shall not furnish permits for gas/mechanical work to any person, firm or corporation other than his own. All work done under any permit shall be performed under the supervision of the certificate holder who obtained the permit. Work cannot be subcontracted under any conditions to other than a master mechanical, HVAC&R or gas and appliance contractor who shall obtain his/her own permits.

H. Failure to comply with any of the duties listed above shall constitute grounds for suspension or revocation of the gas/mechanical contractor's registration. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-118)

16.16.800 Certification required for registration as contractor.

A. No person engaged in or desiring to engage in the business of gas/mechanical as a metropolitan gas/mechanical contractor shall be registered as such by the department of codes administration unless such person holds a current and valid certificate duly issued by the board of gas/mechanical examiners and appeals.

B. No person, firm, association or corporation, other than an individual holding a current and valid certificate, as set forth above, engaged in or desiring to engage in the business of gas/mechanical as a metropolitan gas/mechanical contractor, shall be registered as such by the department of codes administration unless such person, firm, association or corporation employs the services of an individual holding a current and valid certificate duly issued by the board of gas/mechanical examiners and appeals. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-120)

16.16.810 Revocation of registration—Grounds—Notice—Reinstatement.

A. The board of gas/mechanical examiners and appeals shall revoke or suspend a registration of any contractor upon positive proof that such person, firm or corporation:

1. Knowingly violated the provisions of this chapter or the rules and regulations of the board;

2. Practiced fraud or deception in making application for or obtaining such registration;

3. Is incompetent to perform a service to the public as a registered contractor;

4. Permit his registration to be used, directly or indirectly, by another person, firm or corporation to obtain or perform work or services;

5. Obtain permits for another person, firm or corporation to perform gas/mechanical work;

6. Worked as a gas/mechanical contractor prior to registration with the board after the grandfathering of existing contractors time period has expired;

7. Is guilty of such other unprofessional or dishonorable conduct of such nature as to deceive or defraud the public.

B. No action of the board to suspend or revoke a certificate of registration shall become final until the alleged offender has been given an opportunity to appear before the board to show cause as to why such action should not be taken.

C. Notice, in writing, of the proposed action of the board to revoke or suspend a certificate of registration shall be given to the holder of such certificate, stating the specific charges upon which such action is based. The notice shall stipulate that a hearing will be scheduled at a time and place set by the board for the aggrieved party to show cause why such action should not be made final. Such hearing shall not be held less than forty-eight hours following notice to the aggrieved party. Failure to appear before the board to answer the specific charges set forth in the notice shall be deemed just cause for final revocation or suspension of registration.

D. In the event registration is revoked by the board, an application for reinstatement of such registration shall not be accepted by the board within one year after the date of such revocation. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-119)

16.16.820 Contractor's eligibility for permits—Employment of certificate holder required.

A. In the event a metropolitan gas/mechanical contractor, as defined in Sections 16.16.740 through 16.16.760, should for any reason dispense with or otherwise fail to retain the services of a metropolitan certificate holder, then such metropolitan gas/mechanical contractor shall no longer be eligible to obtain gas/mechanical permits until such time as such gas/mechanical contractor shall employ the services of a certified certificate holder to supervise its work.

B. In all such instances, it shall be the duty of such metropolitan contractor to immediately notify the director of codes administration, in writing, of any change in the status or relationship of any certificate holder employed. It shall be the duty also of each metropolitan certificate holder employed by a metropolitan gas/mechanical contractor to immediately notify the director of codes administration, in writing, of any change in employment or in his relationship with a metropolitan gas/mechanical contractor. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-121)

16.16.830 Stop work order—Issued for work authorized under certificate holder no longer employed.

In the event a metropolitan gas/mechanical contractor, as defined in Sections 16.16.740 through 16.16.760, shall cease to employ the services of a metropolitan certificate holder, the contractor shall notify the director of codes administration within forty-eight hours. Such gas/mechanical contractor shall no longer be entitled to secure permits. The director of codes administration may issue a stop work order for any work authorized and not completed under any permit issued to such contractor, if in the director's opinion conditions so require it, subject to an appeal by such contractor to the board of gas/mechanical examiners and appeals. Such notice shall be in writing and shall be delivered to such gas/mechanical contractor by registered mail or served personally on such contractor. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-122)

16.16.840 Display of license and advertising.

For display of license and advertising see Sections 16.16.850 and 16.16.860. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-130)

16.16.850 Vehicle identification requirements.

A. All trucks and similar vehicles used by contractors or their employees shall have conspicuously painted on the body of both sides of said vehicles, in any color in contrast to the color of the vehicle's body, one of two methods of identification stated below:

1. The full name of the firm to which it belongs, in lettering at least two inches high or;

2. The wording "Licensed Master Mechanical Contractor," "Licensed HVAC&R Contractor," or "Licensed Gas and Appliance Contractor," in lettering at least two inches high on the top line; the wording "No." in lettering at least two inches high and "[insert assigned number]" in lettering at least two inches high, on the second line; and the wording "Metro Nashville" in lettering at least one and one-half inches high on the third line.

B. In the event a contractor obtains a vehicle for temporary use, he will be permitted to identify said vehicle by placing on it in a clearly visible position on both sides, a temporary sign or letters to conform to the same requirements as the permanent lettering described in this section. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-130.1)

16.16.860 Advertisements must include certificate numbers and classification.

Any advertisement by a contractor, including but not limited to yellow pages and newspaper advertisement, shall include the certificate number of the certificate holder and classification. (Ord. 90-1253 § 1 (part), 1990; prior code § 19-1-130.2)

Chapter 16.20

ELECTRICAL CODE

Sections:

Article I. General Regulations

16.20.010 Purpose of provisions.
16.20.020 Scope.
16.20.030 Proper maintenance required—Owner's responsibility.
16.20.040 Installations—By homeowner.
16.20.050 Installations—Restrictions.
16.20.060 Rules and regulations—Enforcement authority.
16.20.070 Additional requirements—Authority of director.
16.20.080 Inspection records—Open to public.
16.20.090 Stop-work orders—Issuance—Exception.
16.20.100 Revocation of permits or approval.
16.20.110 Hazardous installations—Abatement—Condemnation—Discontinuance of service.
16.20.120 Interference with director prohibited.
16.20.130 Failure to comply with chapter unlawful.

Article II. Electrical Code

16.20.140 National Electrical Code—Adopted by reference.
16.20.150 Amendments to the National Electrical Code.
16.20.154 Amendments to the electrical sections of the International Residential Code for One- and Two-Family Dwellings.

Article III. Electrical Permits

16.20.160 Required when.
16.20.170 Exemptions.
16.20.180 Application.
16.20.190 Registration requirements—Exceptions.
16.20.195 Display of license and advertising.
16.20.200 Homeowner permits—Prerequisites.
16.20.210 Plans and specifications.
16.20.215 Plans prepared by others.
16.20.220 Applications—Examination by director.
16.20.230 Applications—Timely action required.
16.20.240 Reviewed plans—Procedures—Copy at jobsite.
16.20.250 Fee schedule—Electrical permits.
16.20.260 Fees—Refunds.
16.20.270 Inspection required.
16.20.280 Additions to unlawful installations.
16.20.290 Additions to existing installations—Prerequisites.
16.20.300 Issuance.
16.20.310 Permit denial conditions.
16.20.320 Interpretation—Limited authority.
16.20.330 Expiration—Extension.
16.20.340 Nontransferability.
16.20.345 Change in contractor—Reissuance of permit—Fees.

Article IV. Inspections

16.20.350 Required when.
16.20.360 Temporary use of power pending inspection.
16.20.370 Notice when work ready for inspection.
16.20.380 Inspection test—Permittee's responsibility.
16.20.390 Material and labor for tests—Permittee's responsibility.
16.20.400 Notice of approval—When—Posted.
16.20.410 Reinspections.
16.20.420 Notice of rejection.
16.20.430 Testing of existing defective systems.
16.20.440 Certificate of approval—Issuance—Report of defective work.
16.20.450 Covering work prior to test prohibited.

Article I. General Regulations

16.20.010 Purpose of provisions.

This chapter is declared to be remedial and shall be construed to secure the beneficial interest and purposes thereof, which are health, general public safety and welfare, by regulation of all electrical installations and electrical systems and all electrical system alterations,

repairs, and maintenance. (Prior code § 14-1-1)

16.20.020 Scope.

The provisions of this chapter shall apply to every electrical installation and electrical system, both new and existing, including, but not limited to, all alterations, repairs, replacement and maintenance, and to all electrical devices, equipment, appliances, fixtures and appurtenances within the metropolitan government area when such are installed, or connected to, or designed, or intended to be connected to any public or private electrical supply system; provided, that this chapter shall not be construed to apply to operations of the metropolitan government acting by and through the electric power board of the metropolitan government; provided further, that existing electrical installations which substantially comply with an electrical code in effect at the time those installations were installed and which are still in substantial compliance therewith shall not be required to be replaced by the enactment of this chapter, unless such electrical installations are hazardous to the surrounding properties or to the occupants of the building containing such electrical installations. (Prior code § 14-1-2)

16.20.030 Proper maintenance required—Owner's responsibility.

A. All electrical installations and electrical systems, both new and existing, and all parts thereof and appurtenances thereto, shall be installed and maintained as required by this chapter, in a safe and satisfactory condition.

B. All devices, equipment and safeguards required by this chapter shall be installed and properly maintained in a safe and satisfactory manner and in good working order. The owner or his designated agent shall be held responsible for the proper maintenance of all electrical installations and electrical systems. (Prior code § 14-1-3)

16.20.040 Installations—By homeowner.

Nothing in this chapter shall prevent any resident homeowner from installing or maintaining an electrical system within his own property boundaries, provided such electrical work is done by himself. Such privilege does not convey the right to violate any of the provisions of this chapter, nor is it to be construed as exempting any such homeowner from obtaining a permit and paying the required fees therefor.

The director of codes administration or his duly authorized representative shall be authorized to issue "homeowner permits" to property owners desiring to make electrical repairs and/or additions to their property or improvements thereto. Homeowner permits shall be issued only if the applicant meets the following conditions:

1. The electrical repairs and/or additions shall be made to the owner applicant's principle dwelling.

2. The homeowner may only obtain one electrical permit within a twelve-month period.

3. The repairs, additions and/or new dwelling shall be of such nature that a person of average intelligence could make the repairs and/or additions without the assistance of an electrical contractor.

4. The department of codes administration may void a homeowner's permit if it is determined that the installation is beyond the capabilities of the homeowner and the work being done does not comply with this chapter.

5. The homeowner must do the work himself without the help of an electrical contractor or certificate holder.

6. The homeowner may be required to provide proof of residency and ownership.

7. Homeowner electrical permits shall not be issued for commercial purposes. (Ord. BL2020-458 § 4, 2020; prior code § 14-1-4)

16.20.050 Installations—Restrictions.

Wires, other than wires incased in rigid iron conduit or steel tubing, shall not be installed in new buildings or structures until such buildings or structures are under roof and wires are not likely to suffer mechanical injury or to be exposed to the weather. (Prior code § 14-1-10)

16.20.060 Rules and regulations—Enforcement authority.

A. The director of codes administration shall have the power and his duty shall be to enforce, in the manner provided in this chapter, all laws, ordinances, rules and regulations relating to electrical installations and electrical systems as set forth in this chapter and any amendments thereto, and to promulgate such rules and regulations as may be deemed necessary for the effective enforcement of this chapter.

B. Such rules and regulations as may be promulgated by the director of codes administration shall be approved by the metropolitan board of electrical examiners and appeals, shall be approved by the metropolitan department of law as to form and legality and shall become effective upon written approval of the mayor. (Prior code § 14-1-5)

16.20.070 Additional requirements—Authority of director.

Any requirement deemed necessary for the safety, strength or stability of an existing or proposed electrical

installation or electrical system or for the safety or welfare of the occupants of any building or structure, not specifically covered by the provisions of this chapter, shall be determined by the director of codes administration, subject to an appeal to the metropolitan board of electrical examiners and appeals. (Prior code § 14-1-11)

16.20.080 Inspection records—Open to public.

The director of codes administration shall keep or cause to be kept a record of the business activities of the electrical inspection section. Such records shall be open for public inspection during the normal office hours of the department of codes administration. (Prior code § 14-1-6)

16.20.090 Stop-work orders—Issuance—Exception.

A. When it is found by the director of codes administration or his duly authorized representative that any electrical installation is being made or that any electrical devices, equipment or fixtures required by this chapter are being installed without a duly issued permit, the director shall issue or cause to be issued a stop-work order.

B. When the director finds that an emergency exists, a written stop-work order shall not be required; and in such instances, oral notice to the owner, his agent or the person in charge of the work, by the director or his duly authorized representative, shall have the same force and effect as a written order. The stop-work order shall remain in effect until a permit has been duly issued. (Prior code § 14-1-7)

16.20.100 Revocation of permits or approval.

The director of codes administration may revoke an electrical permit or approval issued under the provisions of this chapter in the event there has been any false statement or wilful misrepresentations on which the permit or approval was based. In all such instances, where a permit has been revoked, the permit fee shall neither be refunded nor applied to any subsequent application for a permit. (Prior code § 14-1-8)

16.20.110 Hazardous installations—Abatement—Condemnation—Discontinuance of service.

A. Abatement. All electrical installations or electrical systems which are unsafe, which are dangerous to human life or which, in relation to existing or contemplated use, constitute a hazard to the safety or general welfare of the community, by reason of improper installation, inadequate maintenance, obsolescence or abandonment are declared to be illegal, and shall be abated by repair, replacement or removal.

B. Condemnation. All electrical installations and electrical systems and all devices, equipment, appliances, fixtures and appurtenances used for electrical purposes, which at any time become defective so as to be likely to cause fires or accidents and endanger lives or property, shall be condemned. When the director of codes administration or his duly authorized representative finds that it is necessary to condemn any electrical installation or equipment, notice shall be given the owner or user of such to have the same repaired and put in safe condition or removed from the premises. Upon failure to comply with such notice, the electrical inspector is authorized and directed to disconnect such wiring or equipment from the source of electrical energy or cause the same to be done.

C. Notice to Discontinue Service. Upon condemnation of any defective electrical installation or equipment, the director of codes administration or his duly authorized representative shall give notice to the public utility or person furnishing electric current to such defective installation or equipment to cease to supply current to the same until a written release is issued by the department of codes administration allowing current to be supplied or restored.

D. Failure to Discontinue Service. It is unlawful for a public utility or any other person to furnish or connect electric current to any electrical installation or system or to any electrical device, equipment, appliance, fixture or appurtenance which has been condemned and disconnected or in any manner rendered inoperative by an electrical inspector, or to use such wiring or equipment as a part of any electrical system until the same has been repaired, inspected and released by the electrical inspector. (Prior code § 14-1-9)

16.20.120 Interference with director prohibited.

It is unlawful for any person to interfere with the director of codes administration or his authorized representative in the discharge of any of the duties imposed upon him, expressly or impliedly, by this chapter. (Prior code § 14-1-13)

16.20.130 Failure to comply with chapter unlawful.

It is unlawful for any person to violate any provision of this chapter or fail to comply therewith or with any provisions thereof, or to violate a detailed statement or plans submitted and approved thereunder. (Prior code § 14-1-14)

Article II. Electrical Code

16.20.140 National Electrical Code—Adopted by reference.

The 2023 Edition of the National Electrical Code, Article 90 through Chapter 9 inclusive are adopted and incorporated into this chapter as the technical section of the electrical code of the metropolitan government, by reference, as fully as though copied into this chapter.

The 2024 Edition of the International Residential Code for One- and Two-Family Dwellings, Chapter 35 thru Chapter 41 inclusive are adopted and incorporated into this chapter as the technical section of the electrical code of the metropolitan government, by reference, as fully as though copied into this chapter. (Ord. BL2025-898 § 4, 2025; Ord. BL2020-458 § 4, 2020; Ord. BL2011-953 § 1, 2011; Ord. BL2009-435 § 1, 2009; Ord. BL2007-1373 § 7, 2007; Ord. BL2005-796 § 1, 2005; Ord. BL2000-243 § 1, 2000; Ord. 96-562 § 69, 1996; Ord. 96-321 § 1, 1996)

16.20.150 Amendments to the National Electrical Code.

A. Article 100 of the 2023 Edition of the National Electrical Code is amended by deleting the definition of Authority Having Jurisdiction and substituting the following:

Authority Having Jurisdiction - The Director of the Metropolitan Department of Codes Administration or his designee.

B. Article 110.12 of the 2023 Edition of the National Electrical Code is amended by adding the following:

For residential and commercial buildings, electrical power shall be supplied to the building in order for inspector to perform final inspection.

C. Article 110.14(D) of the 2023 Edition of the National Electrical Code is amended by deleting Article 110.14(D) and substituting with the following:

Terminal Torque Confirmation

Where tightening torque is indicated as a numeric value on equipment or in installation instructions provided by the manufacture, a calibrated torque tool shall be used to achieve the indicated torque value, unless the equipment manufacture has provided installation instructions for an alternative method of achieving the required torque. It shall be the responsibility of the installer to ensure all terminations have been properly torqued. For service conductor and feeder terminations, upon torque confirmation and prior to inspection, the installer shall mark across the terminal, lug or screw with a permeant mark to verify proper torque has been applied.

D. Article 210 of the 2023 Edition of the National Electrical Code is amended by adding the following:

Wiring in Barns, Outbuilding & Haymows

All lighting fixtures in barns and other outbuildings shall be of the non-conductor type directly fastened to the outlet box.

Drop lights shall not be installed in barns or other buildings, unless specifically approved for the purpose used.

All convenience receptacles in outbuildings shall be at least three (3) feet above floor level. Wiring in hay mows shall be installed in conduit or otherwise protected against mechanical injury.

E. Article 210.12(A), 210.12(B), 210.12(C), 210.12(D), and 210.12(E) of the 2023 Edition of the National Electrical Code is amended by adding the following exceptions:

Arc Fault Circuit Interrupters - Where Optional

Exception 1: Arc Fault Circuit Interrupters (AFCIs) shall be optional for laundry areas and unfinished basements, which are portions or areas of the basement not intended as habitable rooms and limited to storage, work or similar area, and for branch circuits dedicated to supplying refrigeration equipment. [st]

Exception 2: Arc Fault Circuit Interrupter (AFCI) breakers shall be optional where existing service equipment or load centers are directly replaced.

Exception 3: Arc Fault Circuit Interrupter (AFCI) breakers shall be optional where existing service equipment or load centers are relocated, provided the extension of existing conductors is not more than 6 feet and does not include any additional outlets or devices.

F. Article 210.52(A)(2) of the 2023 Edition of the National Electrical Code is amended by adding the following exception:

Wall Space

Any wall space that is 2 feet (610 mm) or more in width, (including space measured around corners), and that is unbroken at the floor line by doorways, fireplaces, and similar openings.

Exception: Receptacles shall not be required in the wall space behind doors which may be opened fully against a wall surface. Wall measurement shall begin at the edge of the door when fully opened.

G. Article 210.52(C)(2)(3) of the 2023 National Electrical Code is hereby amended by deleting Section Article 210.52(C)(2)(3) and substituting the following:

Countertop and Peninsular Receptacles. The installation of receptacles for island counter spaces and peninsular counter spaces below the countertop shall be optional.

H. Article 210.52 of the 2023 Edition of the National Electrical Code is amended by adding the following new Article 210.52(J):

210.52 Smoke Detectors

New construction

Dwelling Units and Sleeping Rooms: Approved single-station or multiple-station smoke detectors shall be installed in accordance with NFPA 72, Chapter 2, within every dwelling and every dwelling unit within an apartment house, condominium or townhouse, and every guest or sleeping room in a motel, hotel, dormitory, and sleeping rooms in residential care/assisted living occupancies. Where more than one detector is required to be installed within an individual dwelling unit, the detectors shall be interconnected, either by hardwire or listed wireless detectors, in such a manner that the actuation of one alarm will actuate all the alarms in the individual unit.

Locations Within Structures: In dwelling, dwelling units, dormitories, and sleeping rooms in residential care/assisted living occupancies smoke detectors shall be installed in each sleeping room, outside of each separate sleeping area in the immediate vicinity of the bedrooms, on each additional story of the dwelling, in basements, cellars and attached garages but not including crawl spaces and uninhabitable attics. Smoke alarms shall be installed not less than 3 feet horizontally from the door or opening of a bathroom that contains a bathtub or shower unless this would prevent placement of a smoke alarm required by this section.

Additional Split-Level Requirements: Within every dwelling and every dwelling unit within an apartment house, condominium or townhouse, and every guest or sleeping room in a motel, hotel, dormitory, and sleeping rooms in residential care/assisted living occupancies, with split levels, a smoke detector needs to be installed only on the upper level, provided the lower level is less than one full story below the upper level, except that if there is a door between levels, then a detector is required on each level. All detectors shall be interconnected such that actuation of one alarm will actuate all the alarms in the individual unit and shall provide an alarm, which will be audible in all sleeping areas.

Installation Near Cooking Appliances: Smoke alarms shall not be installed in the following locations unless this would prevent placement of a smoke alarm in a location required by Section 314.3.

(1) Ionization smoke alarms shall not be installed less than 20 feet horizontally from a permanently installed cooking appliance.

(2) Ionization smoke alarms with an alarm-silencing switch shall not be installed less than 10 feet horizontally from a permanently installed cooking appliance.

(3) Photoelectric smoke alarms shall not be installed less than 6 feet horizontally from a permanently installed cooking equipment.

Power source: Each smoke alarm shall receive their primary power from the building wiring when such wiring is served from a commercial source, and when primary power is interrupted, shall receive power from a battery. Wiring shall be permanent and without a disconnecting switch other than those required for overcurrent protection.

Exception 1: Smoke alarms shall be permitted to be battery operated when installed in buildings without commercial power.

Exception 2: Smoke alarms installed during alterations, repairs and additions shall be permitted to be battery powered.

Alterations, Repairs, Additions and Reconnections to Existing Electrical Services

Alterations, Repairs, Additions and Reconnections to Existing Electrical Services: When interior alterations, repairs, additions requiring a permit occur, or when electrical reconnections to an existing service requiring a permit occur, or when one or more sleeping rooms are added or created, or where interior service equipment is replaced or upgraded under non-emergency conditions in existing dwellings, the individual dwelling unit shall be equipped with interconnected smoke alarms located as required for new dwellings. For the purpose of this section, the smoke alarms shall be permitted to be wirelessly interconnected and shall be permitted to be battery powered.

Exception 1: Work involving the exterior surfaces of dwellings, such as the replacement of roofing or siding, or the addition or replacement of windows or doors, or the addition of a porch or deck, are exempt from the requirements of this section.

Exception 2: Installation, alteration or repairs of plumbing or mechanical systems are exempt from the requirements of this section.

Exception 3: Work involving service entrance repairs made under emergency conditions are exempt from the requirements of this section.

Alterations, repairs and additions shall be defined as the following:

Alteration — Any construction, retrofit or renovation to an existing structure other than repair or addition that requires a permit. Also, a change in the building, electrical, gas, mechanical or plumbing system that

involves an extension, addition or change to the arraignment, type or purpose of the original installation that requires a permit.

Repair — The reconstruction, replacement or renewal of any part of an existing building for the purpose of its maintenance or to correct damage.

Addition — An extension or increase in floor area, number of stories or height of a building or structure.

I. Article 210.70(C) of the 2023 Edition of the National Electrical Code is hereby amended by adding the following:

Light fixtures in crawl spaces shall have guarded covers.

J. Article 220.55 of the 2023 Edition of the National Electrical Code is hereby amended by deleting Article 220.55 and substituting the following:

220.55 Branch Circuit Load for Ranges and Cooking Appliances. Where installed as separate units, ovens and cooktop units shall be served by individual circuits

K. Article 230.1 of the 2023 Edition of the National Electrical Code is amended by adding the following:

Meter Location.

The power supplier will determine the physical location of the meter base. For multi-occupancy structures, metering equipment shall be identified to indicate the occupancy serviced.

L. Article 230.43 of the 2023 Edition of the National Electrical Code is amended by adding the following:

Service entrance conductors shall be installed in conduit where such conductors serve a structure with exterior walls of brick, stone, masonry, metal or metal-clad.

M. Article 230.70(A)(1) of the 2023 Edition of the National Electrical Code is amended by deleting 230.70(A)(1) and inserting the following:

(1) Readily Accessible Location. The main service disconnecting means shall not be located more than five (5) feet from the point where the service conductors leave the load side of a meter base and enter a building or other structure.

N. Article 240.8 of the 2023 Edition of the National Electrical Code is amended by adding the following:

Overcurrent Protection Handle Ties. Circuit breakers used as overcurrent protection for circuits serving devices not requiring a grounded (neutral) conductor, such as a 240V water heater, shall be multipole breakers. Single pole breakers with tie handles shall not be approved for this purpose.

O. Article 250.50 of the 2023 Edition of the National Electrical Code is amended by deleting Article 250.50 and substituting the following:

Grounding Electrode System

All grounding electrodes as described in 250.52(A)(1) through (A)(6) that are present at each building or structure served shall be bonded together to form the grounding electrode system. Where none of these grounding electrodes exist, one or more of the grounding electrodes specified in 250.52(A)(4) through (A)(8) shall be installed and used. A minimum of one concrete encased electrode shall be in place and visible upon a service entrance inspection. The grounding electrode conductor or bonding jumper point of connection to the rebar shall be installed in an accessible interior location that is not subject to corrosion of the rebar.

Exception: Concrete-encased electrodes of existing buildings or structures shall not be required to be part of the grounding electrode system where the steel reinforcing bars or rods are not accessible for use without disturbing the concrete.

P. Article 300.21 of the 2023 Edition of the National Electrical Code is amended by deleting Article 300.21 and substituting the following:

300.21 Penetrations of Fire Rated Assemblies

Through Voids. Electrical installation in hollow spaces, vertical shafts, and ventilation or air-handling ducts shall be made so that the possible spread of fire or products of combustion will not be substantially increased.

Through Materials. Electrical penetration through fire-resistance-rated walls, partitions, floors or ceiling shall be protected by approved methods to maintain the fire-resistance rating of the element penetrated.

Openings for Outlet Boxes. Openings in fire-resistance-rated walls or floor/ceiling assemblies for metallic electrical outlet boxes not exceeding 16 square inches are permitted provided the area of such openings does not aggregate more than 100 square inches for any 100 square feet of fire resistant wall area or floor/ceiling area or shaft enclosure wall area. Outlet boxes on opposite sides of a fire resistance-rated wall or shaft enclosure shall be separated by a horizontal distance of not less than 24 inches (610 mm).

Exception: Openings for electrical outlet boxes of any material are permitted provided such boxes are listed for use in fire resistant assemblies and are installed in accordance with their listing.

Apparatus Exceeding 16 Square Inches. When walls, floors, ceilings and partitions are required to have a minimum 1-hour or greater fire resistance rating, service equipment, panels, panel boards, cabinets, switchboards and lighting fixtures that exceeds 16 square inches shall be so installed such that the required fire resistance will not be reduced.

Exception: Fixtures, which are listed for such installation, are permitted.

Q. Article 334.15(C) of the 2023 Edition of the National Electrical Code is amended by adding the following exception:

NM Cable Thru Bored Holes. Exception: Nonmetallic-Sheathed Cable shall not be required to be run through bored holes in unfinished basements and crawl spaces with less than four feet (4') and six inches (6") of clearance.

R. Article 625.43 of the 2023 Edition of the National Electrical Code is amended by deleting Article 625.43 as written and substituting the following:

625.43 Disconnecting Means. EVSE and WPTE shall be provided with one or more disconnecting means in accordance with 625.43(A) and 625.43(8).

625.43(A) Equipment Disconnects. For fixed-in-place EVSE and WPTE rated more than 60 amperes or more than 150 volts to ground, the disconnecting means shall be provided and installed in a readily accessible location. If the disconnecting means is installed remote from the equipment, a plaque shall be installed on the equipment denoting the location of the disconnecting means. The disconnecting means shall be lockable open in accordance with 110.25. For portable and fastened-in-place equipment, the cord-and-plug-connection shall be permitted to serve as the disconnecting means.

625.43(8) Emergency Shutoff. For fixed-in-place eguipment supplying de power to the vehicle. one or more clearly identified emergency shutoff devices or electrical disconnects shall be provided and shall meet all of the following:

(1) Be installed in a readily accessible location in sight from the equipment

(2) Disconnect power to all electric vehicle power transfer system equipment on the premises

(3) Be marked "ELECTRIC VEHICLE EMERGENCY DISCONNECT"

(4) Require manual intervention in order to reset from an emergency shutoff condition

(5) Disconnect all ungrounded conductors of the circuits simultaneously from the source of supply

The disconnecting: means required in accordance with 625.43(A) shall be permitted to serve as the emergency disconnect if it complies with all the requirements of 625.43(B)

Exception: Emergency disconnects. other than that required in accordance with 230.85. shall not be required for EVSE and WPTE installed at one- and two-family dwelling units.

S. Article 680.14 of the 2023 Edition of the National Electrical Code is amended by adding the following exception:

Swimming Pools. Exception: Conductors serving swimming pools which originate at a dwelling unit service equipment or sub-panel located on the interior of the dwelling unit may be installed utilizing the appropriate wiring methods contained in Chapter 3 of the 2023 Edition of the National Electrical Code. The wiring method shall comply with Article 680, 2023 Edition of the National Electrical Code regarding that portion of the installation on the exterior of the dwelling unit.

T. Article 700.5(A) of the 2023 Edition of the National Electrical Code is amended by adding the following:

Installations Served by Multiple Sources. Transfer equipment associated with installations served by alternate sources of supply shall be equipped with the necessary equipment to prevent backfeed of power onto the power supplier's system when the power supplier's local system is not energized by its own source of power. Protective equipment and installation of equipment to prevent backfeed shall be approved by the power supplier.

U. Article 410.10 of the 2023 Edition of the National Electrical Code is amended by adding the following Section G:

Parking Lots - Open parking lots shall use luminaires with a "U" BUG rating (Backlight Uplighting Glare) of 0 without external shields. Luminaires shall have a Correlated Color Temperature (CCT) of 3000 Kelvin or below. Principal walkways and parking shall have a maintained minimum illuminance of 0.2 foot-candles at grade. The average light level is not to exceed the average lighting levels set forth in the table below, as related to the Transect Category for the site as designated in the Community Plans of NashvilleNext. Spill light at the property line shall not exceed 0.5 foot-candles measured at 3' above grade. Exception may be given for calculation points on the drive between the parking lot and roadway only. Luminaires shall be controlled by occupancy sensor or timers after business hours or between the hours of 12:00 a.m. to 6:00 a.m., at a minimum. Occupancy sensors or timers may turn lights off or dim by at least 30% during periods of no occupancy. Prior to installation, a photometric plan shall be reviewed by a certifying engineer with calculation points on a 10' × 10' grid.

Transect Category	Average Lighting Level
T1 Natural, T2 Rural	0.8 foot-candles at grade
T-3 Suburban	1.25 foot-candles at grade
T4 Urban, T-5 Center, T-6 Downtown	1.5 foot-candles at grade

V. Exterior lighting design for buildings shall be consistent with the requirements of Section 17.28.100. (Ord. BL2025-898 § 4, 2025; Amdts. 1, 2 to Ord. BL2020-535 § 1, 2021; Ord. BL2020-535 § 1, 2021; Ord. BL2020-458 § 4, 2020; Ord. BL2011-953 § 2, 2011; Ord. BL2009-435 § 2, 2009; Ord. BL2007-1373 § 9, 2007; Amdt. 1 to Ord. BL2005-796, 2005; Ord. BL2005-796 § 2, 2005; Ord. BL2002-1142 § 22, 2002; Ord. BL2001-703 § 11, 2001; Ord. BL2000-343 § 2, 2000; Ord. 98-1445 § 74, 1998; Ord. 96-321 §§ 8—13, 1996; Ord. 93-570 §§ 2—7, 1993; Ord. 92-118 § 13 (part), 1992; Ord. 90-1253 § 1 (part), 1990; Ord. 89-1002 § 2, 1989; prior code §§ 14-1-29.2, 19-1-41.1.2 (part))

16.20.154 Amendments to the electrical sections of the International Residential Code for One- and Two-Family Dwellings.

The following amendments, deletions or additions to the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings are hereby adopted by reference as fully as though copied into said dwelling code and thereby made a part of the one- and two-dwelling code.

Chapter 2 of the 2024 International Residential Code for One- and Two-Family Dwellings is amended by deleting the definition of Authority Having Jurisdiction and substituting the following:

Authority Having Jurisdiction - The Director of the Metropolitan Department of Codes Administration. [art. 100]

A. Section R314 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section R314 and substituting the following:

R314 Smoke Detectors

New Construction

Dwelling Units and Sleeping Rooms: Approved single-station or multiple-station smoke detectors shall be installed in accordance with NFPA 72, Chapter 2, within every dwelling and every dwelling unit within an apartment house, condominium or townhouse, and every guest or sleeping room in a motel, hotel, dormitory, and sleeping rooms in residential care/assisted living occupancies. Where more than one detector is required to be installed within an individual dwelling unit, the detectors shall be interconnected, either by hardwire or listed wireless detectors, in such a manner that the actuation of one alarm will actuate all the alarms in the individual unit.

Locations Within Structures: In dwelling, dwelling units, dormitories, and sleeping rooms in residential care/assisted living occupancies smoke detectors shall be installed in each sleeping room, outside of each separate sleeping area in the immediate vicinity of the bedrooms, on each additional story of the dwelling, basements, cellars and attached garages but not including crawl spaces and uninhabitable attics. Smoke alarms shall be installed not less than 3 feet horizontally from the door or opening of a bathroom that contains a bathtub or shower unless this would prevent placement of a smoke alarm required by this section.

Installation Near Cooking Appliances: Smoke alarms shall not be installed in the following locations unless this would prevent placement of a smoke alarm in a location required by Section 314.3.

(1) Ionization smoke alarms shall not be installed less than 20 feet horizontally from a permanently installed cooking appliance.

(2) Ionization smoke alarms with an alarm-silencing switch shall not be installed less than 10 feet horizontally from a permanently installed cooking appliance.

(3) Photoelectric smoke alarms shall not be installed less than 6 feet horizontally from a permanently installed cooking equipment.

Additional Split-Level Requirements: Within every dwelling and every dwelling unit within an apartment house, condominium or townhouse, and every guest or sleeping room in a motel, hotel, dormitory, and sleeping rooms in residential care/assisted living occupancies, with split levels, a smoke detector needs to be installed only on the upper level, provided the lower level is less than one full story below the upper level, except that if there is a door between levels, then a detector is required on each level. All detectors shall be interconnected such that actuation of one alarm will actuate all the alarms in the individual unit and shall provide an alarm, which will be audible in all sleeping areas.

Power source: Smoke alarms shall receive their primary power from the building wiring when such wiring is served from a commercial source, and when primary power is interrupted, shall receive power

from a battery. Wiring shall be permanent and without a disconnecting switch other than those required for overcurrent protection.

Exception 1: Smoke alarms shall be permitted to be battery operated when installed in buildings without commercial power.

Exception 2: Smoke alarms installed during alterations, repairs and additions shall be permitted to be battery powered.

Alterations, Repairs, Additions and Reconnection of Existing Services

Alterations, Repairs, Additions and Reconnection of Existing Services: When interior alterations, repairs, additions requiring a permit occur, or when electrical reconnections to an existing service requiring a permit occur, or when one or more sleeping rooms are added or created, or where interior service equipment is replaced or upgraded under non-emergency conditions in existing dwellings, the individual dwelling unit shall be equipped with interconnected smoke alarms located as required for new dwellings. For the purpose of this section, the smoke alarms shall be permitted to be wirelessly interconnected and shall be permitted to battery powered.

Exception 1: Work involving the exterior surfaces of dwellings, such as the replacement of roofing or siding, or the addition or replacement of windows or doors, or the addition of a porch or deck, are exempt from the requirements of this section.

Exception 2: Installation, alteration or repairs of plumbing or mechanical systems are exempt from the requirements of this section.

Exception 3: Work involving service entrance repairs made under emergency conditions are exempt from the requirements of this section.

Alterations, repairs and additions shall be defined as the following:

Alteration — Any construction, retrofit or renovation to an existing structure other than repair or addition that requires a permit. Also, a change in the building, electrical, gas, mechanical or plumbing system that involves an extension, addition or change to the arraignment, type or purpose of the original installation that requires a permit.

Repair — The reconstruction, replacement or renewal of any part of an existing building for the purpose of its maintenance or to correct damage.

Addition — An extension or increase in floor area, number of stories or height of a building or structure.

B. Chapter 34 of the 2024 International Residential Code for One- and Two-Family Dwellings is amended by adding the following:

For residential and commercial buildings, electrical power shall be supplied to the building in order for the inspector to perform final inspection.

Sections E3402.2 and E3402.3 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings are hereby amended by adding the following Sections E3402.2 and E3402.3:

Penetrations of Fire-Resistance-Rated Assemblies. Through penetrations of fire-resistance-rated wall or floor assemblies shall comply with Sections E3402.2 or E3402.3 Exception: Where the penetrating items are steel, ferrous or copper pipes or steel conduits, the annular space shall be permitted to be protected as follows:

In concrete or masonry wall or floor assemblies where the penetrating item is a maximum 6 inches (152 mm) nominal diameter and the opening is a maximum 144 square inches (92,900 mm 1.2), concrete, grout or mortar shall be permitted where installed to the full thickness of the wall or floor assembly or the thickness required to maintain the fire-resistance rating.

The material used to fill the annular space shall prevent the passage of flame and hot gases sufficient to ignite cotton waste when subjected to ASTM E 119 time temperature fire conditions under a minimum positive pressure differential of 0.01 inch of water (3 Pa) at the location of the penetration for the time period equivalent to the fire-resistance rating of the construction penetrated. 2.

E3402.2 Fire-resistance-rated-rated assembly. Penetrations shall be installed as tested in the approved fire-resistance-rated assembly.

E3402.3 Penetration firestop and draftstops. Penetrations shall be protected by an approved penetration firestop system installed as tested in accordance with ASTM E 814, with a minimum positive pressure differential of 0.01 inch of water (Pa) and shall have a F rating of not less than the required fire-resistance rating of the wall or floor/ceiling assembly penetrated.

E3402.3 Membrane penetrations. Membrane penetrations shall comply with Section 300.21.1. Where walls are required to have a minimum 1 hour fire-resistance rating, recessed light fixtures shall be so installed such that the required fire resistance will not be reduced.

Exceptions: Steel electrical boxes that do not exceed 16 square inches (0.0103 m 1.2) in area provided the total area of such openings does not exceed 100 square inches (0.0645 m 2) for any 100 square feet

(9.29 m 2) of fire resistant wall area. Outlet boxes on opposite sides of the wall shall be separated as follows:

By a horizontal distance of not less than 24 inches, or 1.1.

By a horizontal distance of not less than the depth of the wall cavity when the wall cavity is filled with cellulose loose-fill or mineral fiber insulation, or 1.2.

By molded fire blocking, or 1.3.

By other listed materials and methods. 1.4.

Two-hour fire-resistance-rated nonmetallic electrical outlet boxes shall be installed in accordance with their listing. 2.

C. Section E3406.12 of the 2024 International Residential Code for One- and Two-Family Dwellings is amended by deleting Section E3406.12 and substituting with the following:

Terminal Torque Confirmation. Where tightening torque is indicated as a numeric value on equipment or in installation instructions provided by the manufacture, a calibrated torque tool shall be used to achieve the indicated torque value, unless the equipment manufacture has provided installation instructions for an alternative method of achieving the required torque. It shall be the responsibility of the installer to ensure all terminations have been properly torqued. For service conductor and feeder terminations, upon torque confirmation and prior to inspection, the installer shall mark across the terminal, lug or screw with a permeant mark to verify proper torque has been applied.

D. Chapter 36 of the 2024 International Residential Code for One- and Two-Family Dwellings is amended by adding the following:

Meter Location. (1) The power supplier will determine the physical location of the meter base. (2) For multi-occupancy structures, metering equipment shall be identified to indicate the occupancy serviced.

E. Section E3601.6.2 of the 2024 International Residential Code for One- and Two-Family Dwellings is amended by adding the following:

Readily Accessible Location. The main service disconnecting means shall not be located more than five (5) feet from the point where the service conductors leave the load side of a meter base and enter a building or other structure.

F. Section E3601.7 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section E3601.7 and substituting the following:

Maximum number of disconnects. The service disconnecting means shall consist of not more than six switches or six circuit breakers mounted in a single enclosure or in a group of separate enclosures of more than 225 amps. Service equipment shall have only one (1) main means of disconnecting services of 225 amps or less.

G. Section E3608.1 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section E3608.1 and substituting the following:

Grounding Electrodes. All grounding electrodes specified in E3608.1.1 through E3608.1.6 that are present at each building or structure served shall be bonded together to form the grounding electrode system. Where none of these grounding electrodes are present, one or more of the grounding electrodes specified in E3608.1.3 through E3608.1.6 shall be installed and used. A minimum of one concrete encased electrode shall be in place and visible upon a service entrance inspection. The grounding electrode conductor or bonding jumper point of connection to the rebar shall be installed in an accessible interior location that is not subject to corrosion of the rebar.

Exception: Concrete-encased electrodes of existing buildings or structures shall not be required to be part of the grounding electrode system where the steel reinforcing bars or rods are not accessible for use without disturbing the concrete.

H. Section E3702.9 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section E3702.9 and substituting the following:

Branch Circuit Load for Ranges and Cooking Appliances. Where installed as separate units, ovens and cooktop units shall be served by individual circuits.

I. Section E3705.5 of the 2024 International Residential Code for One- and Two-Family Dwellings is amended by adding the following:

Overcurrent Protection Handle Ties. Circuit breakers used as overcurrent protection for circuits serving devices not requiring a grounded (neutral) conductor, such as a 240V water heater, shall be multipole breakers. Single pole breakers with tie handles shall not be approved for this purpose.

J. Section E3801.2 of the 2024 International Residential Code for One- and Two-Family Dwellings is amended by adding the following:

Service Entrance Conductors. Service entrance conductors shall be installed in conduit where such conductors serve a structure with exterior walls of brick, stone, masonry, metal or metal-clad.

K. Section E3802.4 of the 2024 International Residential Code for One- and Two-Family Dwellings is amended by adding the following exception:

NM Cable Thru Bored Holes. Exception: Nonmetallic-Sheathed Cable shall not be required to be run through bored holes in unfinished basements and crawl spaces with less than four feet (4') and six inches (6") of clearance.

L. Section E3901.2.2(1) of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is amended by adding the following exception:

Wall Space. Any wall space that is 2 feet (610 mm) or more in width, (including space measured around corners), and that is unbroken at the floor line by doorways, fireplaces, and similar openings.

Exception: Receptacles shall not be required in the wall space behind doors which may be opened fully against a wall surface. Wall measurement shall begin at the edge of the door when fully opened.

M. Section E3901.4.2 and E3901.4.3 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by deleting Section E3901.4.2 and E3901.4.3 and substituting the following:

Countertop and Peninsular Receptacles. The installation of receptacles for island counter spaces and peninsular counter spaces below the countertop shall be optional.

N. Section E3902.16 of the 2024 International Residential Code for One- and Two-Family Dwellings is amended by adding the following exceptions:

Arc Fault Circuit Interrupters - Where Optional

Exception 1: Arc Fault Circuit Interrupters (AFCIs) shall be optional for bathrooms, laundry areas, garages, unfinished basements, which are portions or areas of the basement not intended as habitable rooms and limited to storage, work or similar area, and for branch circuits dedicated to supplying refrigeration equipment. [st]

Exception 2: Arc Fault Circuit Interrupter (AFCI) breakers shall be optional where existing service equipment or load centers are directly replaced.

Exception 3: Arc Fault Circuit Interrupter (AFCI) breakers shall be optional where existing service equipment or load centers are relocated, provided the extension of existing conductors is not more than 6 feet and does not include any additional outlets or devices. [210.12]

O. Section E3903.4 of the 2024 Edition of the International Residential Code for One- and Two-Family Dwellings is hereby amended by adding the following:

Storage or Equipment Spaces. Light fixtures in crawl spaces shall have guarded covers.

P. Chapter 40 of the 2024 International Residential Code for One- and Two-Family Dwellings is amended by adding the following:

Wiring in Barns, Outbuilding & Haymows

(1) All lighting fixtures in barns and other outbuildings shall be of the non-conductor type directly fastened to the outlet box

(2) Drop lights shall not be installed in barns or other buildings, unless specifically approved for the purpose used.

(3) All convenience receptacles in outbuildings shall be at least three (3) feet above floor level. Wiring in hay mows shall be installed in conduit or otherwise protected against mechanical injury.

Q. Section E4202.1 of the 2024 International Residential Code for One- and Two-Family Dwellings is amended by adding the following exception:

Swimming Pools. Exception: Conductors serving swimming pools which originate at a dwelling unit service equipment or sub-panel located on the interior of the dwelling unit may be installed utilizing the appropriate wiring methods contained in Chapter 3 of the 2023 edition of the National Electrical Code. The wiring method shall comply with Article 680, 2023 edition of the National Electrical Code regarding that portion of the installation on the exterior of the dwelling unit. (Ord. BL2025-898 § 4, 2025; Ord. BL2020-458 § 4, 2020; Ord. BL2007-1373 § 8, 2007; Ord. BL2001-703 § 9, 2001; Ord. BL2000-343 § 3, 2000; Ord. 96-562 §§ 70—84, 1996)

Article III. Electrical Permits

16.20.160 Required when.

A. It shall be the duty of every person legally entitled to apply for and receive an electrical permit, to make application for and to obtain the required electrical permit from the department of codes administration prior to the installation of any electrical system or part thereof and prior to the connection of any such electrical installation or electrical system to any public or private source of supply, and prior to the installation of any electrical device, equipment, appliance, or fixture, in any existing or proposed new electrical installation or system.

B. Nothing in this chapter shall be construed to prohibit, and no permits shall be required for, normal maintenance and minor repairs to an existing electrical system which does not involve the installation of new conductors. (Ord. 91-1558 § 5, 1991; prior code § 14-1-30)

16.20.170 Exemptions.

A. No electrical permit shall be required for electrical work performed for the state, the metropolitan government, or any city within the metropolitan government area when such electrical work is performed entirely within the right-of-way of a state highway or other public thoroughfare and the work is performed by a qualified maintenance electrician.

B. No electrical permit shall be required for low-voltage wiring in existing one- or two-family dwellings when the work consists of ten or fewer active or current utilization devices being installed except in dwellings that are not required to have fire separations of two hours or more.

C. No electrical permit shall be required for low-voltage wiring installed by a regulated communications utility company where the work performed by the utility is subject to jurisdiction and inspection by any federal or state agency. However, the department of traffic and parking is authorized under this section to obtain permits for traffic signal equipment installed in accordance with Section 16.20.170(A).

D. A "regulated communications utility company" means a communications utility company subject to the jurisdiction, regulation, and inspection of federal or state agencies, specifically including, but not limited to, the Tennessee Public Service Commission.

E. No electrical permit shall be required to maintain or repair low-voltage wiring. (Ord. 93-570 § 8, 1993; Ord. 91-1558 § 6, 1991; prior code § 14-1-31)

16.20.180 Application.

Application for an electrical permit shall be made in writing on forms provided by the director of codes administration. Each applicant entitled to receive an electrical permit shall be required to submit such information as may be deemed necessary to assure that the electrical installation or electrical system for which a permit is requested, when installed, shall comply with the requirements and provisions of this chapter. (Prior code § 14-1-34)

16.20.190 Registration requirements—Exceptions.

No permit for the installation of any electrical system, or part thereof, or the connection of any such electrical installation or electrical system to any public or private source of supply or the installation or repair of any electrical device, equipment, appliance or fixture required or governed by this chapter shall be issued to any person unless such person has been duly registered by the department of codes administration as a metropolitan electrical contractor. A maintenance electrician shall not be authorized to obtain electrical permits.

Exceptions:

1. A homeowner meeting the requirements of [Section] 16.20.040.

2. Any person properly registered as an equipment installer under the provisions of shall be issued permits under this chapter to provide electrical branch circuits from an existing adequate electrical service to fixed, portable or stationary appliances sold and installed by such equipment installer.

3. Any person properly registered as a low-voltage contractor under the provisions of Article VI shall be issued permits under this chapter to provide one hundred thirty volt or less electrical branch circuits from an existing adequate electrical service to equipment sold and installed by a low-voltage contractor; provided, that such contractor shall register as a low-voltage installer in accordance with provisions of Article VI. (Ord. BL2020-458 § 4, 2020; Ord. 91-1558 § 7, 1991; Ord. 90-1253 § 6, 1990; prior code § 14-1-32)

16.20.195 Display of license and advertising.

[A.] Vehicle Display. All trucks and similar vehicles used by contractors or their employees shall have conspicuously painted on the body of both sides of said vehicles, in any color in contrast to the color of the vehicle's body, one of two methods of identification stated below:

1. The full name of the firm to which it belongs, in lettering at least two inches high or;

2. The wording "Electrical Contractor," "Licensed Electrical Contractor, "or "Licensed Gas and Appliance Contractor," in lettering at least two inches high on the top line; the wording "No." in lettering at least two inches high and "[insert assigned number]" in lettering at least two inches high, on the second line; and the wording "Metro Nashville" in lettering at least one and one-half inches high on the third line.

In the event a contractor obtains a vehicle for temporary use it shall be permissible to identify said the vehicle by placing upon both sides a temporary sign or letters to conform to the same requirements as the permanent lettering described in this section.

[B.] Advertisements. Advertisements must include certificate numbers and classification. Any advertisement by a contractor, including but not limited to yellow

pages and newspaper advertisement, shall include the certificate number of the certificate holder and classification. (Ord. BL2020-458 § 4, 2020)

16.20.200 Homeowner permits—Prerequisites.

As a prerequisite to issuance of an electrical permit to an owner, the resident homeowner shall submit satisfactory evidence to the board of electrical examiners and appeals, either by written or oral examination, as to his knowledge and ability to make such installations. The type of work the resident homeowner is engaged in or has been engaged in that is related to electrical systems should be used as a guide as to the resident homeowner's ability and knowledge and ability to make such installations. The resident homeowner shall have the right of appeal. (Prior code § 14-1-33)

16.20.210 Plans and specifications.

A. When it is found by the director of codes administration that detailed plans and specifications are necessary to define the nature and character of the work to be performed and to identify the type, grade and size of the materials, devices, equipment and fixtures to be installed, the applicant shall furnish such plans and specifications with the application for an electrical permit. Such plans shall be drawn to scale, and all plans and specifications shall be in duplicate.

B. All information submitted with the application for a permit and in the plans and specifications shall be specific; and this chapter shall not be cited as a whole or in part, nor shall the term "legal" or "equivalent" be used as a substitute for the specific information required. (Prior code § 14-1-35)

16.20.215 Plans prepared by others.

Failure on the part of third parties to correct known defects in plans or specifications prepared by others shall not relieve the electrical contractor, master electrician, equipment contractor, electrical equipment installer, low-voltage contractor, or low-voltage wiring installer of responsibility for reporting such known defects to the metropolitan electrical inspector. (Ord. 91-1558 § 8, 1991; prior code § 14-1-35.1)

16.20.220 Applications—Examination by director.

The director of codes administration shall examine or cause to be examined each application for a permit and the plans and specifications submitted therewith and shall determine by such examination whether the electrical installation, electrical system, device, equipment, fixtures, etc., as indicated and described, are in accordance with the provisions and requirements of this chapter and other pertinent laws and ordinances. (Prior code § 14-1-36)

16.20.230 Applications—Timely action required.

The director of codes administration shall act upon or cause to be acted upon an application for a permit with plans and specifications as filed therewith, or as such may be amended, without unreasonable or unnecessary delay. (Prior code § 14-1-37)

16.20.240 Reviewed plans—Procedure—Copy at jobsite.

Each set of the reviewed plans and specifications shall be properly marked "Reviewed," with one set being returned to the applicant with the permit and one set being retained as a record in the office of the director of codes administration. A copy of the reviewed plans and specifications shall be kept on the job at all times during the progress of the work. (Ord. 95-1487 § 86 (part), 1995; prior code § 14-1-38)

16.20.250 Fee schedule—Electrical permits.

A. No electrical permit shall be held valid until the fees prescribed in this section shall have been paid, nor shall an amendment or change to an existing permit be approved until such additional fees, as may be due, shall have been paid.

B. In addition to any other penalty imposed for failure to obtain a permit where electrical work of any type, for which a permit is required, is commenced before a permit is issued, the permit fees shall be tripled.

C. Permit fees for the installation of any electrical system or part thereof, including but not limited to the installation of both new electrical systems and additions, alterations and repairs to existing electrical systems, the installation of electrical fixtures, equipment and devices and appurtenances thereto, shall be as follows:

1. Lighting circuits or any circuit where outlets are intended to be installed for low-voltage devices or lamp-holding devices and receptacles for the attachment of small, portable electrical devices and appliances; 130 volts or less:

a. For the installation of 10 or fewer such outlets	$6.00
b. For additional outlets over 10, each	$1.00
2. Motors and generators:	
One horsepower or less each	$2.00
Two to 10 horsepower, each	$8.00
Over 10 horsepower, each	$14.00
Motor-generator sets	$20.00
3. Electric ranges:	
Residential, each	$20.00

Commercial, each	$25.00
4. Water heaters:	
Residential, each	$15.00
Commercial, each	$20.00
5. Electric heat and electrically heated appliances other than ranges and water heaters:	
One to five kw, each	$8.00
Five to 10 kw, each	$14.00
Over 10 kw, each	$20.00
6. Electric dryers:	
Residential, each	$10.00
Commercial, each	$14.00
7. Electric signs (excluding service), each	$20.00
8. Service, new installation, increasing size, or relocation, per meter	$12.00
9. Installation of any wiring, device, apparatus, appliance or equipment not specifically covered herein, such as but not limited to disconnects, 220 volt receptacles, each	$9.00
10. Distribution, lighting or switch panels:	
200 amperes or less, each	$10.00
201 to 400 amperes, each	$20.00
401 to 800 amperes, each	$30.00
801 to 1600 amperes, each	$50.00
1601 to 3000 amperes, each	$75.00
3001 to 6000 amperes, each	$145.00
Each additional 100 amperes or fraction thereof	$3.00
11. Minimum fee (each permit) (Including permit for the installation of any electrical system or part thereof, including but not limited to the installation of both new electrical systems and additions, alterations and repairs to existing electrical systems, the installation of electrical fixtures, equipment and devices and appurtenances thereto, temporary services, etc.)	$75.00
12. Re-inspection fee (each)	$50.00
13. Service releases:	
Residential, one-family or two-family, except condominium units, each service riser	$75.00
Residential, more than two-family, and condominium units, each service riser	$75.00
Commercial or industrial, each service riser	$102.00
14. Emergency re-connection of service, each	$102.00

D. Workforce housing fee adjustments.

1. In order to facilitate the provision of workforce housing within the area of the metropolitan government, the permit fees provided in subsection B. of this section shall be reduced by twenty-five percent for new home construction, or the rehabilitation of existing dilapidated and vacant homes, to be used for workforce housing.

2. For purposes of this subsection, "workforce housing" means housing that meets one of the following two criteria:

a. Housing to be sold at a price at or below two and one-half times ninety-five percent of the median family income currently listed for Davidson County as established by the U.S. Department of Housing and Urban Development; or

b. Housing to be rented for at least five years at an annual rental amount that is at or below thirty percent of seventy percent of the median family income currently listed for Davidson County as established by the U.S. Department of Housing and Urban Development.

3. The director shall have the authority to promulgate rules and regulations to implement the provisions of this subsection, provided such rules and regulations are not inconsistent with the express provisions of this subsection. Applicants obtaining the twenty-five percent reduction in permit fees for workforce housing shall provide the director with a sworn affidavit that the residences constructed will satisfy the criteria set forth above and shall file a deed restriction with the Davidson County Register of Deeds requiring that the property remain a workforce housing unit for at least five years. In the event the property does not remain a workforce housing unit for at least five years, the permit holder shall pay to the Metropolitan Government the amount of the permit fee reduction provided above plus interest at the rate of ten percent per annum. (Ord. BL2022-1215 § 4, 2022; Ord. BL2010-788 § 1, 2010; Ord. BL2010-642 § 9, 2010; Ord. BL2004-175 § 3, 2004; Ord. 91-1583 § 1, 1991; Ord. 91-1558 §§ 9, 10, 1991; Ord. 91-1526 § 2, 1991; Ord. 89-821 §§ 1—3, 1989; prior code § 14-1-39)

16.20.260 Fees—Refunds.

A. Application for a refund of fees paid for any unused electrical permit issued under the provisions of this chapter shall be made on forms provided by the director of codes administration.

B. Refunds shall only be made for that portion of a fee exceeding seventy-five dollars. In no case shall any fee be refunded on any unused permit over six months

old or when any inspection has been made, regardless of the fees paid. (Ord. BL2025-1101 § 5, 2025; Ord. BL2010-642 § 10, 2010; Ord. 91-1526 § 3, 1991; prior code § 14-1-40)

16.20.270 Inspection required.

An electrical permit, as may be required for an addition, alteration or repair to an existing substandard building or structure, shall not be issued until such time as an inspection of the property has been made, under the provisions of Chapters 2.80, 2.88, 16.04, 16.08 and 16.24 through 16.56, to determine the feasibility of rehabilitation of such building or structure. (Prior code § 14-1-41)

16.20.280 Additions to unlawful installations.

No electrical permit shall be issued to make additions to unlawful electrical installations or to installations in need of repairs. (Prior code § 14-1-42)

16.20.290 Additions to existing installations—Prerequisites.

No permit shall be issued to install additional wires, machinery, apparatus, devices, equipment or materials to existing installations until sufficient information has been furnished the director of codes administration that the installation is of ample size and capacity to safely carry the existing and added loads. If the installation is of ample size to safely carry the intended load, the department of codes administration may issue a permit; otherwise, the installation shall be made safe and the capacity increased before additional work is installed. (Prior code § 14-1-43)

16.20.300 Issuance.

Upon approval of the application for an electrical permit and the plans and specifications submitted therewith, the director of codes administration shall issue or cause to be issued a permit therefor to the applicant. (Prior code § 14-1-44)

16.20.310 Permit denial conditions.

In such instances where it has been determined that the application for a permit or the plans and specifications filed therewith do not conform to the requirements of this chapter or other pertinent laws and ordinances, an electrical permit shall be refused. The plans and specifications shall be returned to the applicant with a statement setting forth the reasons for such refusal. (Prior code § 14-1-45)

16.20.320 Interpretation—Limited authority.

A. The issuance of an electrical permit shall be construed as the authority to proceed only with the work specified and approved and shall not in any manner be construed as the authority to violate, cancel, alter, change or set aside any of the provisions of this chapter, nor to do or perform any work or make any installation not specifically covered by the approved plans and specifications upon which the permit was issued.

B. The issuance of a permit shall not prevent nor prohibit the director of codes administration from thereafter requiring the correction of errors or omissions in the plans and specifications or in the electrical installation or of violations of this chapter. (Prior code § 14-1-46)

16.20.330 Expiration—Extension.

A. Any electrical permit issued shall become invalid unless the work authorized by such permit shall have been commenced within six months after date of issuance or if the work so authorized is suspended or abandoned for a period of one year after the time the work is commenced.

B. The director of codes administration may, for justifiable cause, grant one or more extensions of time for periods not exceeding ninety days each. (Prior code § 14-1-47)

16.20.340 Nontransferability.

Permits issued under this chapter are not transferable from one contractor, one job, site or location to another, and any refunds shall be made in accordance with Section 16.20.260. This provision shall not prohibit the correction or change of addresses, location or contractor made through error on the application. (Ord. 98-1445 § 78, 1998)

16.20.345 Change in contractor—Reissuance of permit—Fees.

When a change in a contractor occurs before a job is completed, the contractor who obtains the permits shall notify the codes department in writing. A new permit shall be taken out for the unfinished construction. If the permit fee for the original construction was not refunded, the contractor that completes the construction shall pay a fee based on the administrative costs to process the permit that shall be no less than the minimum permit fee. If the permit fee for the original construction has been refunded, the contractor that completes the construction shall pay a full permit fee based upon the construction. (Ord. BL2025-1101 § 6, 2025; Ord. 98-1445 § 79, 1998)

Article IV. Inspections

16.20.350 Required when.

A. All new electrical installations and electrical systems and such portions of an existing electrical system as may be affected by new electrical installations or changes, for which a permit is required, shall be inspected to assure compliance with the requirements of this chapter and to assure that the installation and construction of the electrical system is in accordance with the approved plans and specifications.

B. No person shall furnish or connect electric current to the wires of any building or structure, either on the inside or outside of such building or structure, or to any machinery, appliance, device, equipment, fixture or material for which a permit is required until such have been inspected and approved. (Prior code § 14-1-49)

16.20.360 Temporary use of power pending inspection.

If the director of codes administration or his designated agent is unable to make proper inspection within twenty-four hours after a request for such inspection, or where it is impracticable to complete the work without the use of current, the director may issue a release allowing the current to be supplied temporarily, pending further inspection. Unless all work is completed in strict conformity with this chapter, the director shall cause the current to be disconnected from the source of electrical energy. (Prior code § 14-1-50)

16.20.370 Notice when work ready for inspection.

It shall be the duty of the person to whom an electrical permit is issued to give reasonable advance notice to the department of codes administration when the electrical work for which a permit has been issued is ready for test and inspection. (Prior code § 14-1-51)

16.20.380 Inspection test—Permittee's responsibility.

It shall be the responsibility of the person to whom an electrical permit has been issued to assure that the electrical installation made will stand the test prescribed before making a request of the department of codes administration for test and inspection. (Prior code § 14-1-52)

16.20.390 Material and labor for tests—Permittee's responsibility.

The equipment, material, power and labor required for all electrical inspections and tests shall be furnished by the permittee. (Prior code § 14-1-54)

16.20.400 Notice of approval—When—Posted.

Upon satisfactory completion of the roughing-in inspection and testing of an electrical installation or electrical system, notice of approval of such installation shall be posted in a conspicuous place within the building. Such notice shall be dated and properly signed by the person making the inspection. (Prior code § 14-1-55)

16.20.410 Reinspections.

When the director of codes administration finds that the electrical installation does not pass the required inspection tests, the permittee shall be required to make the necessary changes and corrections and to submit the electrical installation to reinspection and testing. In all such instances where reinspections are deemed necessary, an additional fee of forty-five dollars shall be paid for each reinspection required. (Ord. BL2020-458 § 4, 2020; Ord. 91-1526 § 4, 1991; prior code § 14-1-53)

16.20.420 Notice of rejection.

A. In the event of failure of an electrical installation or electrical system to pass the required tests and inspection, written notice of such failure shall be given the permittee and an electrical-wiring-rejected notice shall be placed in a conspicuous place within the building pending a reinspection and testing, as provided in Section 16.20.410.

B. It is unlawful for any person to remove the electrical-wiring-rejected notice prior to completion of the reinspection testing and approval. (Prior code § 14-1-56)

16.20.430 Testing of existing defective systems.

When there is reason to believe that the electrical system of any building has become defective, it shall be subjected to an inspection and test prior to approval for further use. (Prior code § 14-1-59)

16.20.440 Certificate of approval—Issuance—Report of defective work.

A. Upon satisfactory completion and final inspection of the electrical system, a certificate of approval shall be issued by the director of codes administration, upon request of the permittee or owner.

B. The issuance of a certificate of approval of any wiring shall not relieve the electrical contractor, master electrician, equipment contractor, electrical equipment installer, low-voltage contractor, or low-voltage wiring installer of responsibility for any defective work which may have escaped the notice of the metropolitan electri-

cal inspector. (Ord. 91-1558 § 11, 1991; prior code § 14-1-57)

16.20.450 Covering work prior to test prohibited.

A. No electrical installation, electrical system or part thereof shall be covered until it has been inspected, tested and approved as required by this chapter.

B. When any electrical installation, electrical system or part thereof has been covered prior to being inspected and tested, the director of codes administration shall require the same to be uncovered, in order that the necessary tests may be performed. (Prior code § 14-1-58)

Chapter 16.24

PROPERTY STANDARDS

Sections:

Article I. General Provisions

16.24.010 Title.
16.24.020 Intent—Remedial.
16.24.030 Definitions.
16.24.040 Scope.
16.24.050 Conflicts with other ordinances.
16.24.060 Unlawful acts.
16.24.070 Enforcement—Additional rules and regulations.
16.24.080 Reserved.
16.24.090 Severability.

Article II. Inspections

16.24.100 Authority to inspect buildings, structures, and premises.
16.24.110 Right of entry for inspections.
16.24.120 Inspection of dilapidated dwellings, buildings, and structures.
16.24.130 Certificate of occupancy required.
16.24.140 Issuance of temporary certificates of occupancy.
16.24.150 Inspection fees.

Article III. Enforcement

16.24.160 Existing remedies.
16.24.170 Notice of violation.
16.24.180 Prosecution of violation.
16.24.185 Codes offender school.
16.24.190 Prosecution of repeat violation.
16.24.200 Violation—Penalties.
16.24.210 Historic buildings.
16.24.220 Workmanship.
16.24.230 Alternative materials, methods, and equipment.

Article IV. Emergency Circumstances

16.24.240 Emergency measures—Imminent danger.
16.24.250 Temporary safeguards.
16.24.260 Emergency repairs.
16.24.270 Costs of temporary safeguards or emergency repairs.
16.24.280 Hearing.
16.24.290 Closing streets.

Article V. Minimum Standards for Buildings, Structures, and Premises

16.24.300 Scope.
16.24.310 Responsibility.
16.24.320 Vacant buildings and structures.
16.24.330 Exterior property areas.
16.24.340 Exteriors of buildings and structures.
16.24.350 Interiors of buildings and structures.
16.24.360 Rubbish and garbage.
16.24.370 Extermination.
16.24.380 Light.
16.24.390 Ventilation.
16.24.400 Occupancy limitations.
16.24.410 Plumbing fixtures and fixture requirements.
16.24.420 Toilet rooms.
16.24.430 Plumbing systems and fixtures—General.
16.24.440 Water system.
16.24.450 Sanitary drainage system.
16.24.460 Reserved.
16.24.470 Heating facilities.
16.24.480 Mechanical equipment.
16.24.490 Electrical facilities.
16.24.500 Electrical equipment.
16.24.510 Elevators, escalators and dumbwaiters.
16.24.520 Duct systems—General.
16.24.530 Fire safety requirements—Means of egress.
16.24.540 Fire resistance ratings.
16.24.550 Fire protection systems.

Article VI. Dwellings and Structures Unfit for Human Habitation, Occupation, or Use

16.24.560 Findings, appointment, and purpose.
16.24.570 Determination of unfitness for habitation, occupation or use.
16.24.580 Complaint procedures—Hearing.
16.24.590 Order to repair, vacate or demolish required when.
16.24.600 Complaint and order—Service.
16.24.610 Appeal.
16.24.620 Warning placards.
16.24.630 Removal or demolition of buildings—Notice to vacate.
16.24.640 Demolition of building—Disposal of debris.

16.24.650 Costs of repair or demolition—Lien on property.
16.24.660 Failure to comply—Penalty.

Article I. General Provisions

16.24.010 Title.

These regulations shall be known as the property standards code of the metropolitan government, hereinafter referred to as "this chapter." (Ord. BL2001-585 § 1 (part), 2001)

16.24.020 Intent—Remedial.

This chapter is declared to be remedial, and shall be construed to secure the beneficial interests and purposes thereof, which are public health, safety, and welfare, through establishing and requiring minimum standards for the development, construction, use, occupancy, and maintenance of all buildings, structures and premises located within the area of jurisdiction of the Metropolitan Government of Nashville and Davidson County and establishing procedures for the repair, alteration, improvement, removal, and or demolition of dilapidated dwellings and structures located within the area of jurisdiction of the Metropolitan Government of Nashville and Davidson County. (Ord. BL2001-585 § 1 (part), 2001)

16.24.030 Definitions.

A. Scope. Unless otherwise expressly stated, the following terms shall, for the purposes of this chapter, have the meanings respectively ascribed to them by this chapter.

B. Interchangeability. Words stated in the present tense include the future; words stated in the masculine gender include the feminine and neuter; the singular number includes the plural and the plural the singular.

C. Terms Defined in Other Codes. Where terms are not defined in this chapter and are defined in the metropolitan building code, fire code, zoning code, plumbing code, gas/mechanical code, ANSI A117.1 Handicap Code, energy code or the electrical code, such terms shall have the meanings ascribed to them as in those codes.

D. Terms Not Defined. Where terms are not defined through the methods authorized by this section, such terms shall have ordinarily accepted meanings such as the context implies.

E. Parts. Whenever the words "building," "dwelling unit," "dwelling," "premises," "structure," "rooming house," "rooming unit," or "story" are stated in this chapter, they shall be construed as though they were followed by the words "or part thereof."

F. Terms.

"Accessory building" or "Accessory structure" means a detached building or structure customarily incidental and subordinate to the principal building or structure located on the same lot.

"Accessory use" means a use of a building, structure, or premises, or part thereof, that is customarily incidental and subordinate to the principal use of the building, structure or premises and that occurs on the same lot as the principal use.

"And/or" in a choice of two code provisions, means that use of both or either provisions will satisfy the requirement of this chapter.

"Approved" means approved by the director.

"Basement" means that portion of a building or structure that is partly or completely below grade.

"Bathroom" means a room containing plumbing fixtures including a bathtub and or shower.

"Bedroom" means any room or space used or intended to be used for sleeping purposes.

"Board" or "board of appeals" means the metropolitan board of property standards and appeals.

"Building" means any structure that encloses a space used for sheltering any occupancy. Each part of a building separated from other parts by a firewall shall be construed as a separate building. The term, building, shall be construed as if followed by the words "or part thereof."

"Building code" means the building code adopted by the Metropolitan Government of Nashville and Davidson County.

"Condemn" means to adjudge unfit for habitation, occupation, or use.

"Dilapidated building" or "dilapidated structure" means all buildings and or structures which, by reason of inadequate maintenance, dilapidation, abandonment, inadequate exits, unsanitary conditions, and or conditions that constitute a fire hazard, are unsafe and or are otherwise dangerous to human life and/or are unfit for human habitation, occupation, or use. This definition shall include all buildings and structures as may legally come within the scope of the definition of "building" and "structure" as set forth in this section.

"Director" means the director of the department of codes administration, or such other officers and employees of the department of codes administration as may be charged with the administration of this chapter, or the director's duly authorized representative.

"Dwelling" means any building or structure, or part thereof, used and occupied for human occupation or use or intended to be so used, and includes any outhouses and appurtenances belonging thereto or usually enjoyed therewith.

"Dwelling unit" means a single unit providing complete independent living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking, and sanitation. A dwelling unit shall be construed to include any accessory structure belonging thereto or usually enjoyed therewith.

"Electrical code" means the electrical code adopted by the metropolitan government.

"Energy code" means the energy code adopted by the metropolitan government.

"Enforcement officer" means the director of the department of codes administration and such other officers, employees, and other duly authorized representatives of the director as may be charged with the administration and enforcement of this chapter.

"Exterior property" means the open space on the premises and on adjoining property under the control of the owner, occupant, or operator of such premises.

"Extermination" means the control and elimination of insects, rats, and or other pests by: Eliminating their harborage places, removing or making inaccessible materials that serve as their food, poison spraying, fumigating, and or trapping; or, by any other approved control or elimination method.

"Family" means for purposes of this chapter:

1. An individual; or

2. Two or more persons related by blood, marriage or law; or

3. A group of two or more unrelated persons living together in a dwelling unit, not to exceed four persons in a dwelling unit with three or fewer bedrooms, and not to exceed five persons in a dwelling unit with four or more bedrooms. Such group may include a combination of related and unrelated persons.

"Fire code" means the fire prevention code and or life safety code as adopted by the metropolitan government.

"Fire wall" means a four-hour fire resistive wall, having protective openings, which restricts the spread of fire and extends continuously from the foundation to or through the roof, with sufficient structural stability under fire conditions to allow collapse of construction on either side without collapse of the wall.

"Garbage" means the animal or vegetable waste resulting from the handling, preparation, cooking, and consumption of food.

"Guard" means a building component or a system of building components located at or near the open sides of elevated walking surfaces that minimizes the possibility of a fall from the walking surface to a lower level.

"Habitable space" means space in a structure for living, sleeping, eating, or cooking. Bathrooms, toilet rooms, closets, halls, storage spaces, utility spaces and similar areas are not considered habitable spaces.

"Imminent danger" means a condition that could cause serious or life-threatening injury or death, or significant property damage at any time.

"Infestation" means the presence, within or contiguous to, a structure or premises of insects, rats, vermin or other pests.

"Labeled" means devices, equipment, appliances, or materials to which has been affixed a label, seal, symbol, or other identifying mark of a nationally recognized testing laboratory, inspection agency, or other organization concerned with product evaluation that maintains periodic inspection of the production of the above-labeled items and by whose label the manufacturer attests to compliance with applicable nationally recognized standards.

"Let for occupancy" or "let" means to permit, provide, or offer possession or occupancy of a dwelling, dwelling unit, rooming unit, building, structure, or premise by a person or entity who is or is not the legal owner of record thereof, pursuant to a written or unwritten lease, agreement, or license, or pursuant to a recorded or unrecorded agreement of contract for the sale of land.

"Occupancy" means the purpose for which a building or portion thereof is utilized or occupied.

"Occupant" means any individual living, sleeping, having possession of a space within, or operating in or on a building, structure, or premises.

"Openable area" means that part of a window, skylight or door which is available for unobstructed ventilation, egress or rescue and which opens from the inside to a full clear opening, without the use of a key or tool, directly to the outdoors.

"Operator" means any person who has charge, care, or control of a structure, building, or premises that is let or offered for occupancy.

"Owner" means any person, agent, operator, firm or corporation having a legal or equitable interest in the property; or recorded in the official records of the state, county or municipality as holding title to the property; or otherwise having control of the property, including the guardian of the estate of any such person, and the executor or administrator of the estate of such person if ordered to take possession of real property by a court, and including every mortgagee of record.

"Parties in interest" means all individuals, associations, corporations, and others who have interests of record in a building, structure, or premises, and any who are in possession thereof.

"Place of public accommodation" means any building or structure in which goods are sold or supplied, or in which services are performed, or in which the trade of the general public is solicited.

"Plumbing" means all of the following supplied facilities and equipment: Gas pipes, gas-burning equipment, water pipes, garbage disposal units, waste pipes, water closets, sinks, installed dishwashers, lavatories, bathtubs, shower baths, installed clothes-washing machines, catch basins, drains, vents and any other similar supplied fixtures, together with all connections to water, sewer or gas lines.

"Plumbing code" means the plumbing code adopted by the metropolitan government.

"Premises" means a lot, plot or parcel of land including any building or structure thereon. Such term shall be construed as if followed by the words "or part thereof."

"Privacy" when used in this chapter, means an area or room which may be closed-off from other rooms with a solid door with a locking device thereon.

"Public authority" means any officer in charge of any department or branch of the metropolitan government or the state, relating to health, fire, building regulations or other activities concerning housing, buildings, structures or premises in the area under the jurisdiction of the metropolitan government.

"Roominghouse" means a building arranged or occupied for lodging, with or without meals, for compensation and not occupied as a one- or two-family dwelling.

"Rooming unit" means any room or group of rooms forming a single habitable unit occupied or intended to be occupied for sleeping or living, but not for cooking purposes.

"Rubbish" means combustible and noncombustible waste materials, except garbage; the term shall include, but not be limited to, the residue from the burning of wood, coal, coke and other combustible materials, paper, rags, cartons, boxes, wood, excelsior, rubber, leather, tree branches, yard trimmings, tin cans, metals, mineral matter, glass, crockery and dust and other similar materials.

"Structure" means any dwelling or place of public accommodation or vacant building or structure suitable as a dwelling or place of public accommodation. Also, that which is built or constructed, or part thereof.

"Substandard building" or "substandard structure" means a building, structure and/or premises that is used or designed or intended to be used as a habitable space, which does not meet the basic minimum requirements of this chapter for such use or occupancy, or for which a valid certificate of occupancy has not been issued.

"Supplied" means paid for, furnished or provided by or under the control of the owner or operator or the owner's or operator's agents or representatives.

"Tenant" means a person, corporation, partnership or group, whether or not the legal owner of record, occupying a building or portion thereof as a unit.

"Toilet room" means a room containing a water closet or urinal but not a bathtub or shower.

"Ventilation" means the natural or mechanical process of supplying conditioned or unconditioned air to, or removing such air from, any space.

"Workmanlike" means executed in a skilled manner; e.g., generally plumb, level, square, in line, undamaged and without marring adjacent work.

"Yard" means an open space on the same lot with a structure.

"Zoning code" means the zoning code adopted by the Metropolitan Government of Nashville and Davidson County. (Amdt. C to Ord. BL2022-1471 § 1, 2023; Amdt. B to Ord. BL2022-1471 § 1, 2023; Amdt. A to Ord. BL2022-1471 § 1, 2023; Ord. BL2022-1471 § 1, 2023; Ord. BL2001-585 § 1 (part), 2001)

16.24.040 Scope.

The provisions of this chapter shall apply uniformly to the use, occupancy, maintenance, repair, alteration, and improvement of all existing residential and nonresidential buildings, structures, and premises located within the area of jurisdiction of the metropolitan government. (Ord. BL2001-585 § 1 (part), 2001)

16.24.050 Conflicts with other ordinances.

In any case where a provision of this chapter is found to be in conflict with a provision of any building, fire, safety, or health ordinance or code of the metropolitan government, the provision that establishes the higher standard for the promotion and protection of the public health, safety, and welfare shall prevail. (Ord. BL2001-585 § 1 (part), 2001)

16.24.060 Unlawful acts.

It shall be unlawful for a person, partnership, firm, corporation, or other entity to be in conflict with or in violation of any provision of this chapter. (Ord. BL2025-1070 § 2, 2025; Ord. BL2001-585 § 1 (part), 2001)

16.24.070 Enforcement—Additional rules and regulations.

The director of the department of codes administration ("the director"), such other officers and employees of the department of codes administration ("the department") as may be charged with the administration of this chapter, and any duly authorized representative of the director are designated and appointed to exercise the powers prescribed by this chapter, except those powers that are given to the metropolitan board of property

standards and appeals as set forth herein below. The director, in addition to such other powers as the director may be given, is authorized to adopt and publish rules and regulations, not inconsistent with this chapter, which will conveniently effectuate its purposes and secure compliance with its provisions. Such rules and regulations as are from time to time published shall become effective when approved by the mayor. (Ord. BL2001-585 § 1 (part), 2001)

16.24.080 Reserved.

16.24.090 Severability.

If a section, subsection, sentence, clause, or phrase of this chapter is, for any reason, held to be unconstitutional or unenforceable, such decision shall not affect the validity of the remaining portions of this chapter. (Ord. BL2001-585 § 1 (part), 2001)

Article II. Inspections

16.24.100 Authority to inspect buildings, structures, and premises.

A. The director is authorized to make inspections to determine the condition of all existing buildings, structures, and premises located within the area of jurisdiction of the metropolitan government in order that the director may perform the director's duty of safeguarding the health, safety, and welfare of the occupants of such buildings, structures, and premises and the general public.

B. All buildings, structures, and premises intended for human habitation, occupation, or use shall be inspected for compliance with this chapter. Such inspections, other than those identified in subsection C of this section, shall be made according to a planned, systematic property standards code compliance program when so adopted by resolution of the metropolitan council.

C. Inspections shall be made: Upon a complaint being filed with the department, except that in the case of a dwelling or structure alleged to be unfit for human occupation or use, the complaint of five citizens or the MDHA is required, or any other public authority; may be made upon a request for special inspection; and, may be made upon a visual observation of a possible violation of this chapter by anyone authorized to enforce this chapter. (Ord. BL2001-585 § 1 (part), 2001)

16.24.110 Right of entry for inspections.

A. The director shall enforce the provisions of this chapter and may enter, upon presentation of proper identification to the owner, occupant, or person in control thereof, any building, structure, or premises within the area of jurisdiction of the metropolitan government to perform any duty imposed upon him by this chapter, except in cases of vacant structures, where emergency circumstances do not exist. Such entry for the purpose of making any inspection required in this chapter shall be made during reasonable hours, so as to cause the least inconvenience to the occupants thereof, unless emergency circumstances exist.

B. It is unlawful for any person, whether owner, occupant, or party in control of the building, structure, or premises, to refuse the entry of the director or any of the director's duly authorized representatives or to interfere in any manner in the performance of the duties imposed upon the director by this chapter. (Ord. BL2001-585 § 1 (part), 2001)

16.24.120 Inspection of dilapidated dwellings, buildings, and structures.

No building, plumbing, electrical, gas, mechanical, or other permit shall be issued to allow for the repair, alteration, or improvement of an existing dilapidated dwelling, building, or structure until an inspection has been made to determine the feasibility of rehabilitating such dwelling, building, or structure. (Ord. BL2001-585 § 1 (part), 2001)

16.24.130 Certificate of occupancy required.

It is unlawful to acquire utility services (electric, water, gas, or sewer), either public or private, to serve any vacant dilapidated or substandard building or structure, or part thereof, or any existing dilapidated or substandard building or structure, or part thereof, becoming vacant, until such time as the building or structure has been brought into compliance with this chapter and a valid certificate of occupancy, as required by Chapter 16.36 of this code, has been issued. The director is authorized to approve the acquisition and provision of temporary utility services for a building or structure, or part thereof, for which a valid building permit has issued. The duration of the provision of the temporary utility services should coincide with the expiration date of the underlying building permit. The permittee shall be responsible for acquiring permanent utility services in conjunction with a valid permanent use and occupancy permit. (Ord. BL2001-585 § 1 (part), 2001)

16.24.140 Issuance of temporary certificates of occupancy.

No person shall occupy, let, or offer to let to another for occupancy or use, any building, structure, or premises, or part thereof, which does not comply with the provisions of this chapter and for which a certificate of occupancy, as required by Chapter 16.36 of this code,

has not been issued. The director may issue a temporary certificate of occupancy for a specified period of time, when in the director's opinion a part, or parts, of a building, structure, or premises may be safely occupied prior to final completion. (Ord. BL2001-585 § 1 (part), 2001)

16.24.150 Inspection fees.

A. The director may adopt a fee schedule, subject to approval by resolution of the metropolitan council, in order to carry out the intent of this section. Fees not collected for such inspections shall become a lien against the real property as provided by law. The director is authorized to waive the fee for any person certified as indigent and for an inspection resulting from a complaint when such inspection reveals no violation or cause of action.

B. Whenever a request is made for an inspection of a residential building, structure, or premises to determine whether it complies with this chapter for any Federal Housing Administration or Veterans' Administration Loan Commitment, or any other request of a similar nature involving preparation of a special report, an initial filing fee in the amount of one hundred dollars shall be paid to the department of codes administration at the time the request is made. If the building, structure, or premises fails to pass the first inspection, an additional fee of twenty-five dollars will be required for each succeeding inspection. The above fees apply to residential buildings, structures, or premises containing one or two dwelling units, only. An additional fee of ten dollars per dwelling unit shall be paid for the initial inspection of such residential buildings, structures, or premises exceeding two units. An additional fee of five dollars per dwelling unit shall be paid for each succeeding inspection of such residential buildings, structures or premises exceeding two units. When a fee has been paid pursuant to this subsection, it shall not be refundable for any reason whatever. The fee shall be for the purpose of defraying the costs of making an inspection, preparing a report, administrative costs, and any related costs. (Ord. BL2001-585 § 1 (part), 2001)

Article III. Enforcement

16.24.160 Existing remedies.

The provisions in this chapter shall not be construed to abolish or impair existing and future remedies of the jurisdiction, its officers, or agencies relating to the removal or demolition of any building or structure that is dangerous, unsafe, and or unsanitary. (Ord. BL2001-585 § 1 (part), 2001)

16.24.170 Notice of violation.

A. The director or duly authorized representative shall serve notice of violation of this chapter, except when a dwelling or structure has been determined to be unfit for occupation or use, when there is a repeat violation, or when emergency circumstances exist.

B. Whenever the director determines that there has been a violation of this chapter or has grounds to believe that a violation has occurred, a notice of violation shall be provided to the owner, occupant, or person or entity in control of the building, structure, or premises where the violation or alleged violation exists. Should the director determine that cumulative violations exist so as to render a dwelling or structure, as defined at Tennessee Code Annotated Title 13, Chapter 21 (T.C.A. § 13-21-101 et seq.), unfit for human habitation, occupation, or use, notice and enforcement of this chapter shall be as prescribed in Article VI of this chapter. Otherwise notice shall:

1. Be in writing;
2. Include a description of the building, structure or premises sufficient for identification;
3. Include a statement of the violation(s);
4. Include an order to correct allowing a reasonable time to make the repairs and/or improvements required to bring the building, structure, or premises into compliance with this chapter;
5. Be personally delivered by the director or sent by certified or first-class mail addressed to the last known address; and
6. If notice sent by certified or first class mail is returned showing that the letter was not delivered, a copy thereof shall be posted in a conspicuous place in or about the building, structure, or premises affected by such notice. (Ord. BL2001-585 § 1 (part), 2001)

16.24.180 Prosecution of violation.

If the notice of violation is not complied with, the director or duly authorized official shall institute the appropriate proceeding at law or in equity to restrain, correct, or abate such violation, or to require the removal or termination of the unlawful occupancy of the building, structure, or premises in violation of the provisions of this chapter. Any person or entity failing to comply with a notice of violation served in accordance with this chapter shall be deemed guilty of a misdemeanor and the violation shall be deemed a strict liability offense. (Ord. BL2001-585 § 1 (part), 2001)

16.24.185 Codes offender school.

A. There shall be established, under the supervision of the department of codes administration, a codes offender school for the purpose of providing education

about the property standards provisions in the metropolitan code to persons found by a court of competent jurisdiction to be in violation of any provision of this chapter.

B. The court shall have the discretion to order any person found to be in violation of any provision of this chapter to attend such codes offender school in addition to, or in lieu of, any fine, fee or other punishment prescribed by this title.

C. The department of codes administration shall maintain records showing the names of attendees, dates of attendance, and whether such attendees satisfactorily completed the course.

D. The cost of attending such codes offender school shall be at the sole expense of the person ordered by the court to attend. The department of codes administration is authorized to charge a fee of up to ninety dollars for attending the codes offender school. All fees collected for the codes offender school shall be deposited in the general fund of the general services district to assist in covering the expenditures for instructor salaries, equipment and materials.

E. The department of codes administration shall have the authority to select a nonprofit organization(s) to operate the codes offender school subject to approval of such organization(s) by a resolution adopted by the metropolitan council receiving twenty-one affirmative votes. (Ord. BL2015-1129 § 1, 2015)

16.24.190 Prosecution of repeat violation.

Whenever the director determines that there has been a repeat violation of the same regulation, or any other regulation, within this chapter or has grounds to believe that such a repeat violation has occurred, the director shall forego the issuance of a notice of violation and immediately institute the appropriate proceeding at law or in equity to restrain, enjoin, correct or abate such violation, or to require the removal or termination of the unlawful occupancy of the building, structure or premises in violation of this chapter. (Ord. BL2017-868 § 1, 2017; Ord. BL2006-1067 § 1, 2006; Ord. BL2001-585 § 1 (part), 2001)

16.24.200 Violation—Penalties.

Any person or entity that shall violate a provision of this chapter, or fail to comply with any of the requirements thereof, shall be prosecuted within the limits provided by state and or local law. Each day that a violation continues shall be deemed a separate offense. (Ord. BL2001-585 § 1 (part), 2001)

16.24.210 Historic buildings.

The provisions of this chapter shall not be mandatory for existing buildings or structures designated by the state or the metropolitan government as historic buildings or structures when such buildings or structures are judged by the director to be safe and when application of lesser or varying standards is deemed to further the interests of the public, health, safety, and welfare. (Ord. BL2001-585 § 1 (part), 2001)

16.24.220 Workmanship.

Repairs, alterations, improvements, installations, and maintenance work caused directly or indirectly by the enforcement of this chapter shall be executed in a workmanlike manner. Installations caused directly or indirectly by the enforcement of this chapter shall be made in accordance with the manufacturer's instructions, if any. (Ord. BL2001-585 § 1 (part), 2001)

16.24.230 Alternative materials, methods, and equipment.

This chapter is not intended to prevent the installation of any material or to prohibit any method of construction not specifically prescribed by this chapter, provided that the director has approved any such alternative. The use of any alternative material or an alternative method of construction shall be approved where the director finds that the proposed design is satisfactory and complies with the intent of the provisions of this chapter, and that the material, method of construction, or work offered is, for the purpose intended, at least the equivalent of that prescribed in this chapter in quality, strength, effectiveness, fire resistance, durability and safety. (Ord. BL2001-585 § 1 (part), 2001)

Article IV. Emergency Circumstances

16.24.240 Emergency measures—Imminent danger.

When, in the opinion of the director, there is imminent danger of failure or collapse of any building or structure, or part thereof, which endangers life, or when any building or structure or part of any building or structure has failed or collapsed so as to be an imminent threat to the public health, safety, or welfare, and or life is endangered by the occupation or use of any building or structure, or when there is actual or potential danger to any building's or structure's occupants, or when there is actual or potential danger to persons, buildings, or structures in close proximity of any building or structure, resulting from the instability of any building or structure, or the presence of explosives, explosive fumes or vapors, toxic fumes, toxic gases or materials, or defective or dangerous equipment that is operating, the director is hereby authorized and empowered to order and require the occupants to vacate the building, structure, or premises

forthwith, to order and require temporary safeguards be expeditiously employed, to order and require emergency repairs, and or to cause such building or structure to be demolished pursuant to Section 16.52.080 of this code. In addition, the director may cause to be to be posted at each entrance to such building, structure, or premises a notice reading as follows: "This Building Is Unfit for Human Habitation, Occupation or Use. The Use or Occupancy of This Building is Unlawful and Prohibited by Order of the Director of the Department of Codes Administration." It shall be unlawful for any person to enter such building or structure except for the purpose of securing the structure, making required repairs, removing the hazardous condition, or demolishing the same. (Ord. BL2001-585 § 1 (part), 2001)

16.24.250 Temporary safeguards.

Notwithstanding other provisions of this chapter, whenever, in the opinion of the director, there is imminent danger due to an unsafe condition, the director may order that necessary safeguards be instituted, including the boarding-up of openings, and may cause such other action to be taken as the director deems necessary to meet such emergency and render such building or structure temporarily safe, whether or not the legal procedures herein described have been instituted. The order requiring temporary safeguards shall notify the recipient of the right to appeal the decision of the director within twenty days after completing the required temporary safeguards. For the purposes of this article, the director shall employ the necessary labor and materials to perform the required work as expeditiously as possible. (Ord. BL2001-585 § 1 (part), 2001)

16.24.260 Emergency repairs.

Notwithstanding other provisions of this chapter, whenever, in the opinion of the director, there is imminent danger due to an unsafe condition, the director may order that emergency repairs be made and may cause such other action to be taken as the director deems necessary to meet such emergency and render such building or structure temporarily safe, whether or not the legal procedures herein described have been instituted. The order requiring emergency repairs shall notify the recipient of the right to appeal the decision of the director within twenty days after the completing of the required emergency repairs. For the purposes of this article, the director shall employ the necessary labor and materials to perform the required work as expeditiously as possible. (Ord. BL2001-585 § 1 (part), 2001)

16.24.270 Costs of temporary safeguards or emergency repairs.

The metropolitan government shall initiate appropriate action against the owner of the unsafe building, structure, or premises for the recovery of such costs as it incurred in rendering an unsafe structure, building, or premises safe by undertaking temporary safeguards and or emergency repairs. (Ord. BL2001-585 § 1 (part), 2001)

16.24.280 Hearing.

Any person ordered to take emergency measures shall comply with such order forthwith. Any affected person shall thereafter, upon petition directed to the metropolitan board of property standards and appeals, be afforded a hearing. The affected person shall have twenty days from the date of the completing of the emergency measures to file a petition for appeal to the board of property standards and appeals. Otherwise, the procedure and hearing shall be as hereinafter described in this chapter. (Ord. BL2001-585 § 1 (part), 2001)

16.24.290 Closing streets.

When necessary for public safety, the director shall order the appropriate authority to close, sidewalks, streets, public ways, or places adjacent to unsafe buildings, structures, and/or premises. (Ord. BL2001-585 § 1 (part), 2001)

Article V. Minimum Standards for Buildings, Structures, and Premises

16.24.300 Scope.

The provisions of this article shall govern the minimum standards, conditions and responsibilities of persons or entities that own, occupy, operate or otherwise control any residential or nonresidential building, structure, or premises, under the jurisdiction of Metropolitan Nashville and Davidson County, including the maintenance of equipment, exterior property, and the exteriors and interiors of buildings and structures. (Ord. BL2001-585 § 1 (part), 2001)

16.24.310 Responsibility.

The owner of the premises shall fully maintain the buildings, structures and premises in compliance with these requirements, except as otherwise provided for in this chapter. An owner shall not occupy or permit another person to occupy a building, structure, or premises which is not in a safe, clean, and sanitary condition and or which does not comply with the requirements of this chapter. Any occupant of a building, structure, or premises, or part thereof, and any person or entity that operates in,

on, or otherwise controls any building, structure, premises, or part thereof, is responsible for keeping that part of the building, structure, or premises, which they occupy, operate in or on, or otherwise control, in a safe, clean, and sanitary condition in compliance with this chapter. (Ord. BL2001-585 § 1 (part), 2001)

16.24.320 Vacant buildings and structures.

All vacant buildings, structures, and the premises thereof, shall be maintained in a safe, clean, and sanitary condition as provided herein so as not to cause blight and or otherwise adversely affect the public health, safety, or welfare. (Ord. BL2001-585 § 1 (part), 2001)

16.24.330 Exterior property areas.

A. Sanitation. All exterior property and premises shall be maintained in a safe, clean, and sanitary condition. The occupant of a building, structure, or premises, or part thereof, shall keep that part of the exterior property and premises that such occupant occupies or controls in a safe, clean, and sanitary condition.

B. Open Storage. Except as otherwise provided for in the zoning code, it is unlawful for the owner, occupant, or person or entity in control of a building, structure or premises to utilize the premises of such property for the open storage of any: Inoperable, unlicensed, or unregistered motor vehicle; appliance; building material, including glass, brick, stone, block, wood, metal; rubbish; tires; automotive parts; or debris, including but not limited to weeds, dead trees, trash, rubbish, garbage, etc., or similar items. It shall be the duty and responsibility of every such owner or occupant to keep the premises in a safe, clean, and sanitary condition and to remove from the premises all such stored items upon notice from the director.

C. All premises shall be graded and maintained to prevent the erosion of soil and to prevent the accumulation of stagnant water thereon, or within any building or structure located thereon.

Exception: Approved retention or detention areas or reservoirs.

D. Sidewalks and Driveways. All sidewalks, walkways, stairs, driveways, parking spaces, and similar areas shall be kept in a proper state of repair, shall be maintained free from hazardous conditions, and shall be kept in a safe, clean, and sanitary condition.

E. High Weeds. All premises and exterior property shall be maintained free from weeds in excess of twelve inches so as not to endanger the health, safety, and welfare of the citizens of the metropolitan government. "Weeds" shall be defined as all grasses, annual plants, and vegetation that grow without reasonable intent or purpose to cultivate, harvest, or use for human consumption, or are not otherwise trimmed or controlled. "Weeds" does not include ornamental grasses, trees, trimmed shrubs, or cultivated flowers and gardens. Subject to Section 13.12.190, natural landscaping may be allowed if an intentional design for vegetative growth is on file with and approved by both the metropolitan beautification commission horticulturalist and the Nashville Department of Transportation and Multimodal Infrastructure's chief traffic engineer or his/her designee. All government-owned greenways, parks, recreation areas, and the facilities or grounds of any department of the metropolitan government shall be exempt from the provisions of this section.

F. Rodent Harborage. All buildings, structures and exterior property shall be kept free from rodent harborage and infestation and conditions that promote or support rodent harborage and infestation. Where rodents are found, they shall be promptly exterminated by process that is approved and that is not injurious to human health. After extermination, proper precautions shall be taken to eliminate rodent harborage and prevent re-infestation.

G. Exhaust Vents. Exhaust pipes, ducts, conductors, fans, vents, or blowers shall not discharge gases, steam, vapor, hot air, grease, smoke, odors or other gaseous or particulate wastes directly upon abutting or adjacent public or private property or that of another tenant.

H. Accessory Structures. All accessory structures, including detached garages, fences and walls, shall be maintained structurally sound, in good repair, and in an otherwise safe, clean, and sanitary condition.

I. Gates. Gates which are required to be self-closing and self-latching, in accordance with the Building Code shall be maintained such that the gate will positively close and latch when released from a still position of six inches from the gatepost.

J. Swimming Pools. Swimming pools shall be maintained in a safe, clean, and sanitary condition, and in good repair.

K. Motor Vehicles.

1. Except as provided for in the zoning code, no inoperable or currently unregistered motor vehicle shall be openly parked or stored on any premises within the area of the metropolitan government. Furthermore, no vehicle shall be at any time in a state of major disassembly or disrepair, nor shall it be in the process of being stripped or dismantled, nor shall it undergo a major overhaul, including body work, on any private property within the area of the metropolitan government. This section shall not apply to a motor vehicle on the premises of a business enterprise involved solely in

the repair, renovation or servicing of motor vehicles, or a vehicle inside a structure or similarly enclosed area designed and approved for such purposes.

2. Except as provided in subsection K.1., the parking, storage, or accumulation of an inoperable or unregistered motor vehicle on any premises within the area of metropolitan government, the disassembly, stripping, dismantling, or major overhaul, including body work, of any motor vehicle, or the parking or storage of any motor vehicle in a state of major disrepair on any private property within the area of the metropolitan government, shall constitute a nuisance detrimental to the health, safety and welfare of the inhabitants of the area of the metropolitan government. It shall be the duty of the registered owner of the motor vehicle, the owner of record of the property, or the person in possession of the private property upon which the motor vehicle is located, to abate the nuisance through the removal of the motor vehicle from the area of the metropolitan government, or to have the motor vehicle stored inside a fully enclosed structure or similarly enclosed area designed and approved for such purposes.

3. Every motor vehicle located on private property shall be either stored inside a fully enclosed structure or similarly enclosed area designed and approved for such purposes, or parked or stored in a safe manner on a paved or graveled area, other than a sidewalk. For the purposes of this section, "paved or graveled area" includes, but is not limited to, parking areas which use asphalt, concrete, gravel, and pavers. Such paved or graveled area for private residential property shall not exceed twenty-five percent of the unimproved lot area. In any case where this provision is found to be in conflict with any provision included in Title 17, Zoning, of the metropolitan code of laws, the zoning provision shall prevail. This subsection shall not be applicable to any vehicle for which a valid disabled driver license plate or placard has been issued pursuant to Tennessee Code Annotated § 55-21-101, et seq., and is visibly displayed on or in the vehicle. Further, the provisions of this subsection shall not apply to the parking of automobiles during special events on property under the control of the metropolitan board of public education.

4. Painting of motor vehicles is prohibited unless conducted inside an approved spray booth.

5. Every motor vehicle parked or stored on a paved or graveled area of any residentially-zoned property pursuant to subsection K.3. of this section must contain an engine, radiator, hood, all doors, trunk lid, bumpers, fenders, four wheels with inflated tires, all windows, both front and rear windshields, a battery, a gas cap, and a complete exhaust system. An exception to citation for violation of this subsection shall be made if a vehicle is missing no more than two of the aforementioned parts.

6. Trucks. On any residential property containing a single-family or two-family home, no truck with a maximum axle-load capacity of more than one and one-half tons shall be stored or parked anywhere on the property.

7. Tractor-Trailers. On any residential property containing a single family or two-family home, no tractor-trailer (or portion thereof) shall be stored or parked anywhere on the property.

8. School Buses. On any property containing a single-family or two-family home, one school bus may be parked or stored on the property, provided the driver of the bus resides on the premises and the bus is operated by a private or public K—12 school or school system in Davidson County. No more than one school bus may be parked or stored on the property, regardless of the number of bus drivers residing on the premises.

9. Motor vehicles offered for sale on commercial property. No motor vehicle having a "for sale" sign displayed in or on the vehicle, or having any other conspicuous marking informing persons that the vehicle is for sale, may be parked in the parking area of any commercial property for more than twenty-four consecutive hours within a seven day period unless the person parking the vehicle has the written permission of the property owner or is an employee of a commercial establishment served by the parking area. All such motor vehicles parked for sale on commercial property within the permissible twenty-four consecutive hour period must have a valid state-issued license plate on the vehicle.

L. Except as otherwise provided in the metropolitan zoning code, fences shall be constructed using only the following materials:

1. Woven wire or chain link;

2. Wrought iron;

3. Wood, vinyl, steel, or aluminum slats of no more than one inch by six inches in width hung vertically, horizontally, or diagonally between steel, wood, or vinyl posts no further than ten feet apart;

4. Masonry consisting of brick, concrete block, split-face block, dry-stack stones, or stones and mortar;

5. Plastic or other synthetic material treated in a manner to maintain the fence in good structural condition and with an appearance that is aesthetically compatible with the type of fence it represents;

6. Decorative-type split rail or dry-stack stone may be used for decorative fences.

M. Metal fences shall consist of materials manufactured and/or treated in a manner to prevent rust or corrosion. Wood fences shall be painted, stained or preserved in a manner to maintain the fence in good structural condition. All fences shall be maintained in a manner to preserve the structural integrity and appearance of the fence, including, but not limited to, the replacement of broken boards or sections and preventing paint from peeling.

N. The provisions of subsections L and M shall not apply to temporary construction fencing, temporary tree protection fencing, temporary festival fencing, fencing around a place of incarceration, or to any fence located on property in the AR, AG, R80 or RS80 zoning districts as designated on the official zoning map of the metropolitan government.

O. Barbed wire and razor wire fencing shall be prohibited in all residential zoning districts unless the property satisfies all of the requirements of Section 17.16.330 of the metropolitan zoning code regarding the keeping of domestic animals/wildlife on the property and all necessary permits have been issued.

P. Trailers and Watercraft. No trailer or watercraft located on Private single family or two-family residential property shall be stored in the front yard of the property, but shall be stored on a paved or graveled driveway, or behind the front facade of the residential structure. For purposes of this subsection the following definitions shall apply: "Trailer" means every non-motorized vehicle drawn by a motor vehicle designed for carrying or transporting persons or property. "Watercraft" means every vessel used or capable of being used as a means of transporting persons on water, including motorized and non-motorized devices. All watercraft must be fully operational and, if such watercraft is equipped with a motor that is twenty-five horsepower (25HP) in size or greater, such watercraft must have affixed thereto a current registration issued by the Tennessee Wildlife Resources Agency.

Q. Wood Chips/Mulch. No owner or occupant of any parcel of property one-half acre in size or greater shall permit more than five percent of the lot area to be covered with wood chips/mulch. Piles or mounds of wood chips/mulch placed within this five percent lot area limitation shall not exceed two feet in height. This subsection shall not apply to commercial establishments engaged in the sale of wood chips/mulch, nor to any government-owned property used for the collection and/or sale of mulch.

R. Mulch, as used in this section, means any nonliving, organic, or synthetic material which is customarily used in landscape design to prevent erosion, regulate temperature, or maintain soil moisture.

S. Intermodal Containers. On any property zoned R or RS, no intermodal container, including but not limited to general-purpose shipping containers, garmentainers, and/or hard or soft-open topped bulk containers, shall be kept for storage purposes anywhere on the property for longer than ninety days.

T. Fences.

1. Electric fences are permitted only if compliant with the following requirements:

a. In AG, AR2a, RS80, RS40, RS30, RS20, R80, R40, R30, and R20 zoning districts, electric fences are permitted if the property satisfies all of the requirements of Section 17.16.330.B of the metropolitan zoning code regarding the keeping of domestic animals/wildlife on the property and all necessary permits have been issued; or

b. In all non-residential zoning districts, the construction and use of electric fences are permitted, subject to the following standards:

(i) Electrification:

(a) The energizer for electric fences must be driven by a commercial storage battery not to exceed 12 volts DC. The storage battery is charged primarily by a solar panel. However the solar panel may be augmented by a commercial trickle charger.

(b) The electric charge produced by the fence upon contact shall not exceed energizer characteristics set forth in paragraph 22.108 and depicted in Figure 102 of International Electro technical Commission (IEC) Standard No. 60335-2-76 (as attached to BL2017-688).

(ii) Perimeter fence or wall: No electric fence shall be installed or used unless completely surrounded by a non-electrical fence or wall not less than six feet in height.

(iii) Location: Electric fences shall be permitted on any non-residential outdoor storage areas.

(iv) Height: Electric fences shall not exceed the maximum height permitted by Title 17 of the Metro Code of Laws.

(v) Warning signs: Electric fences shall be clearly identified with warning signs that read: "Warning-Electric Fence" at intervals of not less than thirty linear feet.

(vi) Accessibility: A Knox Box or similar device used to hold access keys for fire departments, police departments and emergency medical services shall be installed for purposes of minimizing damage and to allow access to the enclosed area. Installation may be subject to the oversight and direction of the Nashville Fire Department.

2. In all zoning districts, no fence otherwise permitted under this code shall be erected with barbs or sharp projections on top of such fence, unless it is five feet or

more from a property line or more than seven feet above grade and projecting inward, provided that the following two exceptions shall apply:

a. In all residential zoning districts, barbed wire and razor wire fencing shall be prohibited unless the property satisfies all of the requirements of Section 17.16.330 of the metropolitan zoning code regarding the keeping of domestic animals/wildlife on the property and all necessary permits have been issued.

b. In non-residential zoning districts, the use of barbed or razor wire below seven feet on a fence along any property line is prohibited, unless erected to contain animals under the conditions set forth in subsection T.2.a above. If a fence is erected along any sidewalk in the urban services district, no more than a single strand of barbed wire may be placed on the top of the fence over seven feet high.

c. Within the Urban Zoning Overlay District (UZO), barbed wire and razor wire fencing shall be prohibited along arterial and collector roadways as defined by the adopted Major & Collector Street Plan; provided, that this section shall not be construed to prevent anyone from stretching a single strand of barbed wire on the top of any fence over seven feet high to prevent anyone from climbing over the same.

d. Within the Urban Services District, barbed wire and razor wire fencing along sidewalks shall be further regulated by Metropolitan Code Section 13.32.120.

3. Except as otherwise provided in the metropolitan zoning code, fences shall be constructed using only the following materials:

a. Woven wire or chain link;

b. Wrought iron;

c. Wood, vinyl, steel, or aluminum slats of no more than one inch by six inches in width hung vertically, horizontally, or diagonally between steel, wood, or vinyl posts no further than ten feet apart;

d. Masonry consisting of brick, concrete block, split-face block, dry-stack stones, or stones and mortar;

e. Plastic or other synthetic material treated in a manner to maintain the fence in good structural condition and with an appearance that is aesthetically compatible with the type of fence it represents;

f. Decorative-type split rail or dry-stack stone may be used for decorative fences.

4. Metal fences shall consist of materials manufactured and/or treated in a manner to prevent rust or corrosion. Wood fences shall be painted, stained or preserved in a manner to maintain the fence in good structural condition. All fences shall be maintained in a manner to preserve the structural integrity and appearance of the fence, including, but not limited to, the replacement of broken boards or sections and preventing paint from peeling.

5. The provisions of subsections T.3 and T.4 of this section shall not apply to temporary construction fencing, temporary tree protection fencing, temporary festival fencing, fencing around a place of incarceration, or to any fence located on property in the AR, AG, R80 or RS80 zoning districts as designated on the official zoning map of the metropolitan government.

6. Fences shall be constructed in such a manner so that all fence cross beams and cross bracing shall face the interior of the property, and shall not be oriented toward the street or an adjacent property.

7. Fences shall be constructed according to the visibility requirements in Section 17.20.180 of the metropolitan zoning code.

U. Holiday Lights and Decorations. Holiday lights and decorations shall be permitted in exterior property areas. Such lights and decorations shall be maintained in good, functional condition and shall not impede any ingress or egress to the property or any structures upon the property. (Ord. BL2025-1071 § 1, 2025; Amdts. 1, 2 to Ord. BL2025-1048 § 2, 2025; Ord. BL2025-1048 § 2, 2025; Amdt. 1 to Ord. BL2025-995 § 3, 2025; Ord. BL2025-995 § 3, 2025; Ord. BL2021-795 § 1, 2021; Amdt. 1 to Ord. BL2020-388 § 1, 2020; Ord. BL2020-388 § 1, 2020; Ord. BL2018-1256 § 2, 2018; Ord. BL2016-463 § 1, 2016; Amdt. 1 to Ord. BL2015-1280 § 1, 2015; Ord. BL2015-1280 § 1, 2015; Amdt. 1 to Ord. BL2014-819 § 2, 2014; Ord. BL2014-819 § 2, 2014; Amdt. 1 to Ord. BL2013-552 § 1, 2013; Ord. BL2013-552 § 1, 2013; Amdt. 1 to Ord. BL2010-735 § 1; Ord. BL2010-735 § 1, 2010; Ord. BL2010-651 § 1, 2010; Ord. BL2008-216, § 1, 10-6-2009; Ord. BL2007-1436 § 1, 2007; Ord. BL2006-1187 § 1, 2006; Ord. BL2005-727 § 1, 2005; Ord. BL2005-505 § 3, 2005; Ord. BL2004-427 § 2, 2004; Amdt. 1 with Ord. BL2004-346 § 1, 2004; Amdt. 1 with Ord. 2002-1052 § 1, 2002; Ord. BL2001-585 § 1 (part), 2001)

Editor's note—It should be noted that Ord. BL2013-552 § 2 states: It is the intent of the Metropolitan Council that revenues derived from fines assessed for violations of this ordinance [section] be allocated to the Department of Codes Administration to offset a portion of the costs associated with enforcing the ordinance [section].

16.24.340 Exteriors of buildings and structures.

A. General. The exterior of a building or structure shall be maintained in good repair, structurally sound, and in a clean and sanitary condition so as not to pose a threat to the public health, safety, or welfare.

B. Protective Treatment. All exterior surfaces, including but not limited to, doors, door and window frames, cornices, porches, trim, balconies, decks and fences shall be maintained in good condition. Exterior wood surfaces, other than decay resistant woods, shall be protected from the elements and decay by painting or other protective covering or treatment. Peeling, flaking, and or chipped paint shall be eliminated and the underlying surfaces shall be protected from the elements and decay by paint or other protective covering or treatment. All siding and masonry joints, as well as those between the building envelope and the perimeter of windows, doors, and skylights, shall be maintained weather resistant and water tight. All metal surfaces subject to rust or corrosion shall be coated to inhibit such rust and corrosion and all surfaces with rust or corrosion shall be stabilized and coated to inhibit future rust and corrosion. Oxidation stains shall be removed from exterior surfaces. Surfaces designed for stabilization by oxidation are exempt from this requirement.

C. Premises Identification. All buildings and structures within Metropolitan Nashville and Davidson County shall have approved address numbers posted in accordance with following:

1. Residences are to have their numbers displayed on a contrasting background and in a position to be plainly visible and legible from the street or road fronting the property. The numbers may be attached to the residence or attached to the mailbox, provided the mailbox is next to the street.

2. Numbers posted on the outside of nonresidential buildings must be six inches, or larger, on a contrasting background, and in a position to be plainly visible and legible from the street or road fronting the premises. Numbers posted on interior doors or spaces (such as a lease space in a mall) must be at least three inches in size.

3. Multifamily buildings shall have their numbers displayed to be plainly visible and legible, on a contrasting background, and a minimum size of six inches in height. Identifying numbers, at least three inches in height shall also be posted on or at the doors of individual dwelling units.

D. Structural Members. All structural members shall be maintained free from deterioration, and shall be capable of safely supporting the imposed dead and live loads.

E. Foundation Walls. All foundation walls shall be maintained plumb and free from open cracks and breaks and shall be kept in such condition so as to prevent the entry of rodents and other pests.

F. Exterior Walls. All exterior walls shall be free from holes, breaks, and loose or rotting materials, and shall be maintained weatherproof and properly surface coated where required to prevent deterioration.

G. Roofs and Drainage. The roof and flashing shall be sound, tight, and not have defects that admit rain. Roof drainage shall be adequate to prevent dampness or deterioration in the walls or interior portion of the building or structure. Roof drains, gutters, and downspouts shall be maintained in good repair and free from obstructions. Roof water shall not be discharged in a manner that creates a public nuisance.

H. Decorative Features. All cornices, belt courses, corbels, terra cotta trim, wall facings and similar decorative features shall be maintained in good repair with proper anchorage and in a safe condition.

I. Overhang Extensions. All overhang extensions including, but not limited to canopies, marquees, signs, metal awnings, fire escapes, standpipes, and exhaust ducts shall be maintained in good repair and shall be properly anchored so as to be in a sound condition. When required, all exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather-coating materials, such as paint or other appropriate surface treatment.

J. Stairways, Decks, Porches and Balconies. Every exterior stairway, deck, porch, and balcony, and all appurtenances attached thereto, shall be maintained structurally sound, in good repair, with proper anchorage, and shall be capable of supporting the imposed loads.

K. Chimneys and Towers. All chimneys, cooling towers, smoke stacks, and similar appurtenances shall be maintained structurally safe and sound, and in good repair. All exposed surfaces of metal or wood shall be protected from the elements, decay, and or rust by periodic application of appropriate weather coating materials, such as paint or similar surface treatment.

L. Handrails and Guards. Every handrail and guard shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition.

M. Window, Skylight and Door Frames. Every window, skylight, door and frame shall be kept in sound condition, good repair, and weather tight.

N. Glazing. All glazing materials shall be maintained free from cracks and holes.

O. Openable Windows. Every window, other than a fixed window, shall open and close easily and shall be capable of being held in either position by window hardware.

P. Insect Screens. During the period from April 1st to November 1st, every door, window and other outside opening required for ventilation of habitable rooms, food preparation areas, food service areas, or any areas where products to be included or utilized in food for human consumption are processed, manufactured, packaged or stored, shall be supplied with approved tightly fitting screens of not less than sixteen mesh per inch and every swinging door shall have a self-closing device in good working condition. Exceptions:

1. Screen doors shall not be required where other approved means, such as air curtains or insect repellent fans are employed;

2. Residential units having approved central heating, ventilation and air conditioning systems.

Q. Doors. All exterior doors, door assemblies, and hardware shall be maintained in good condition. Locks at all entrances to dwelling units, rooming units and guestrooms shall tightly secure the door. Locks on means of egress doors shall be in accordance with the requirements of Section 16.24.530 as follows: All means of egress doors shall be readily openable from the side from which egress is to be made without the need for keys or special knowledge, tools, or effort, except where the door conforms to that permitted by the building code.

R. Basement Hatchways. Basement hatchways, bulkhead enclosures, and crawl space access doors shall be maintained to prevent the entrance of rodents, rain, and surface drainage water.

S. Guards for Basement Windows. Every basement or cellar window, that is openable, shall be supplied with screens of standard-size mesh, or other approved protection against the entry of rodents.

T. Defacement of Property. No person shall willfully or wantonly damage, mutilate, or deface any exterior surface of any building or structure, located on any private or public property, by placing thereon any marking, carving, or graffiti. It shall be the duty of the owner of the building, structure, and or real property on which the building or structure is located to restore said surface to an approved state of maintenance and repair.

U. Boarding of Vacant Buildings.

1. Whenever the director of the department of codes administration shall deem a vacant building or structure to be unsafe, or considered a hazard to the public health, safety or welfare, the director may order such building or structure to be locked, boarded or otherwise secured. Every person owning or having control of such vacant building or structure shall lock, board or otherwise secure all windows, doors and openings on the ground floor of the building to restrict entry by unauthorized persons.

2. A vacant building that is boarded shall be boarded by using a minimum of three-eighths inch plywood, OSB, composite board or equivalent. Any board placed on a vacant building shall be painted a color that is consistent with the color of the structure using exterior grade paint, and shall be cut to fit into any windows, doors or other openings on such vacant building. Such boards shall be painted within fifteen days of being affixed to the structure. The director of the department of codes administration shall have the authority to waive the aesthetic requirements of this subsection U.2. in the event of a natural disaster or in the interest of public safety.

V. Holiday Lights and Decorations. Holiday lights and decorations shall be permitted on the exterior of buildings and structures. Such lights and decorations shall be maintained in good, functional condition and shall not impede any ingress or egress to the building or structure upon which the lights and decorations are placed. (Ord. BL2025-1071 § 2, 2025; Ord. BL2015-1015 § 1, 2015; Amdt. 1 to Ord. BL2007-40 § 1, 2008; Ord. BL2007-40 § 1, 2008; Ord. BL2001-585 § 1 (part), 2001)

16.24.350 Interiors of buildings and structures.

A. General. The interior of a building or structure and any equipment therein shall be maintained in good repair, structurally sound, and in an otherwise clean and sanitary condition. Occupants shall keep that part of the building or structure that they occupy or control in a clean and sanitary condition. Every owner of a building or structure containing a rooming house, a hotel, a dormitory, two or more dwelling units, or two or more nonresidential occupancies, shall maintain, in a clean and sanitary condition, the shared or public areas of the structure and exterior property.

B. Structural Members. All structural members shall be structurally sound and capable of supporting the imposed loads.

C. Interior Surfaces. All interior surfaces, including windows and doors, shall be maintained in good, clean and sanitary condition. Peeling, chipping, flaking, or abraded paint shall be repaired, removed, or covered. Cracked or loose plaster, decayed wood, and other defective surface conditions shall be corrected.

D. Stairs and Walking Surfaces. Every stair, ramp, landing, balcony, porch, deck or other walking surface shall be maintained in sound condition and in good repair.

E. Handrails and Guards. Every handrail and guard shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition.

F. Interior Doors. Every interior door shall fit reasonably well within its frame and shall be capable of being opened and closed by being properly and securely attached to jambs, headers, or tracks as intended by the manufacturer of the attachment hardware. (Ord. BL2001-585 § 1 (part), 2001)

16.24.360 Rubbish and garbage.

All exterior property and premises, and the interior of every building and structure, shall be free from any accumulation of rubbish, garbage, and debris.

A. Disposal of Rubbish. Every owner or occupant of a structure shall dispose of all rubbish in a clean and sanitary manner by placing such rubbish in approved containers.

B. Rubbish Storage Facilities. The owner of every occupied premises shall supply approved covered containers for rubbish and shall be responsible for the clean and sanitary removal and disposal of all rubbish.

C. Disposal of Garbage. Every occupant of a building or structure shall dispose of garbage in a clean and sanitary manner by placing such garbage in an approved garbage disposal facility or in approved garbage containers.

D. Garbage Facilities. The owner of every dwelling shall supply one of the following: An approved mechanical food waste grinder in each dwelling unit; an approved incinerator unit in the structure available to the occupants in each dwelling unit; or an approved leak-proof, covered, outside garbage container accessible and sufficient in capacity to serve each dwelling unit.

E. Containers. The operator of every establishment producing garbage shall provide, approved leak proof containers with close-fitting covers for the storage of such materials, and shall cause said containers to be utilized at all times. All rubbish and garbage storage facilities and containers shall be provided and handled in such manner as may be prescribed by the rules and regulations of the department of public works and the metropolitan health department. (Ord. BL2001-585 § 1 (part), 2001)

16.24.370 Extermination.

All structures shall be kept free from insect and rodent infestation. Approved extermination processes that are not injurious to human health shall be promptly employed to rid any building or structure in which insects or rodents are found. After extermination, proper precautions shall be taken to prevent re-infestation.

A. Owner. The owner of any building or structure shall be responsible for extermination within the building or structure, or part thereof, prior to renting or leasing the building or structure, or part thereof.

B. Single Occupant. The occupant of a one-family dwelling or of a single-tenant nonresidential structure shall be responsible for extermination on the premises.

C. Multiple Occupancy. The owner of a building or structure containing two or more dwelling units, a multiple occupancy, a rooming house, or a nonresidential building or structure shall be responsible for extermination in the public or shared areas of the building or structure and exterior property. If infestation is caused by failure of an occupant to prevent such infestation in the area occupied by said occupant, the occupant shall be responsible for extermination.

D. Occupant. The occupant of any building or structure shall be responsible for the continued rodent and pest-free condition of the structure.

EXCEPTION: Where the infestations are caused by defects in the structure, the owner shall be responsible for extermination. (Ord. BL2001-585 § 1 (part), 2001)

16.24.380 Light.

A. Habitable Spaces. In residential occupancies, every habitable space shall have at least one window of approved size facing directly to the outdoors or to a court. The minimum total glazed area for every habitable space shall be eight percent of the floor area of such room. Wherever a wall or other obstructions face a window of a habitable space and such obstruction is located less than three feet from the window and extends to a level above that of the ceiling of the habitable space, such window shall not be deemed to face directly to the outdoors nor to a court and shall not be included as contributing to the required minimum total window area for the habitable space.

EXCEPTION: Where natural light for rooms or spaces without exterior glazing areas is provided through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than twenty-five square feet. The exterior glazing area shall be based on the total floor area being served.

B. Common Halls and Stairways. Every common hall and stairway in residential occupancies, other than in one- and two-family dwellings, shall be lighted at all times with at least a sixty watt standard incandescent light bulb or an equivalent compact fluorescent light (CFL), light emitting diode (LED), or other form of lighting of equal illumination for each two hundred square feet of floor area of said common hall or stairway, provided that the spacing between lights shall not be greater than thirty feet. In other than residential occupancies, means of egress, including exterior means

of egress stairways, shall be illuminated at all times with a minimum of one foot candle at floors, landings, and treads.

C. Other Spaces. All other spaces in residential and nonresidential buildings and structures shall be provided with natural or artificial light sufficient to permit the maintenance of sanitary conditions, the safe occupancy thereof, and the safe utilization of the appliances, equipment, and fixtures. (Ord. BL2010-652 § 1, 2010; Ord. BL2001-585 § 1 (part), 2001)

16.24.390 Ventilation.

A. Habitable Spaces. In dwelling units, every habitable space shall have at least one openable window. The total openable area of the window in every room shall be equal to at least forty-five percent of the minimum glazed area required in Section 16.24.380, above.

EXCEPTION: Where rooms and spaces without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than twenty-five square feet. The ventilation openings to the outdoors shall be based on a total floor area being ventilated.

B. Bathrooms and Toilet Rooms. Every bathroom and toilet room shall comply with the ventilation requirements for habitable spaces as required above, except that a window shall not be required in such spaces equipped with a mechanical ventilation system of sufficient capacity to provide at least one complete air change each six minutes. Air exhausted by a mechanical ventilation system from a bathroom or toilet room shall discharge to the outdoors and shall not be recirculated.

C. Cooking Facilities. Unless approved through the certificate of occupancy, cooking shall not be permitted in any rooming unit or dormitory unit, and a cooking facility or appliance shall not be permitted to be present in a rooming unit or dormitory unit.

EXCEPTION: Where specifically approved in writing by the director.

D. Process Ventilation. Where injurious, toxic, irritating or noxious fumes, gases, dusts, or mists are generated, a local exhaust ventilation system shall be provided to remove the contaminating agent at the source. Air shall be exhausted to the exterior and not be recirculated to any interior space.

E. Clothes Dryer Exhaust. Systems to manage exhaust from clothes dryers shall be independent of all other systems and shall be installed in accordance with the manufacturer's instructions. (Ord. BL2001-585 § 1 (part), 2001)

16.24.400 Occupancy limitations.

A. Privacy. Dwelling units, hotel units, rooming units, and dormitory units shall be arranged to provide privacy and be separate from other adjoining spaces.

B. Minimum Room Widths. A habitable space, other than a kitchen, shall not be less than seven feet in any plan dimension. Kitchens shall have a clear passageway of not less than three feet between counter fronts and appliances or counter fronts and walls.

C. Minimum Ceiling Heights. Habitable spaces, hallways, corridors, laundry areas, bathrooms, toilet rooms and habitable basement areas shall have a clear ceiling height of not less than seven feet. Exceptions:

1. In one- and two-family dwellings, beams or girders spaced not less than four feet on center and projecting not more than six inches below the required ceiling height.

2. Basement rooms in one- and two-family dwellings occupied exclusively for laundry, study, or recreation purposes, having a ceiling height of not less than six feet eight inches and not less than six feet four inches of clear height under beams, girders, ducts and similar obstructions.

3. Rooms occupied exclusively for sleeping, study or similar purposes and having a sloped ceiling over all or part of the room, with a clear ceiling height of at least seven feet over not less than one-half of the required minimum floor area. In calculating the floor area of such rooms, only those portions of the floor area with a clear ceiling height of five feet or more shall be included.

D. Bedroom Requirements. Every bedroom shall comply with the requirements of Sections 16.24.400(E) through 16.24.400(I).

E. Area for Sleeping Purposes. Every bedroom occupied by one person shall contain at least seventy square feet of floor area, and every bedroom occupied by more than one person shall contain at least fifty square feet of floor area for each occupant thereof.

F. Access from Bedrooms. Bedrooms shall not constitute the only means of access to other bedrooms or habitable spaces and shall not serve as the only means of egress from other habitable spaces.

Exception: Units that contain fewer than two bedrooms.

G. Water Closet Accessibility. Every bedroom shall have access to at least one water closet and one lavatory without passing through another bedroom. Every bedroom in a dwelling unit shall have access to at least one water closet and lavatory located in the same story as the bedroom or an adjacent story.

H. Prohibited Occupancy. Kitchens and nonhabitable spaces shall not be used for sleeping purposes.

I. Other Requirements. Bedrooms shall comply with the applicable provisions of this chapter including, but not limited to, the light, ventilation, room area, ceiling height and room width requirements; the plumbing facilities and water-heating facilities requirements; the heating facilities, electrical receptacle requirements; and the smoke detector and emergency escape requirements.

J. Overcrowding. Dwelling units shall not be occupied by more occupants than are permitted by the minimum area requirements of Table 16.24.400.

Table 16.24.400
MINIMUM AREA REQUIREMENTS

SPACE	MINIMUM AREA IN SQUARE FEET		
	1—2 occupants	3—5 occupants	6 or more occupants
Living Room	No requirements[a, b]	120	150
Dining Room	No requirements[a, b]	80	100
Kitchen	50	50	60
Bedrooms	Shall comply with Section 16.24.400(E).		

a. See Section 16.24.400(L) for combined living room/dining room spaces.
b. See Section 16.24.400(K) for limitations on determining the minimum occupancy area for sleeping purposes.

K. Sleeping Area. The minimum occupancy area required by Table 16.24.400 shall not be included as a sleeping area in determining the minimum occupancy area for sleeping purposes. All sleeping areas shall comply with Section 16.24.400(D).

L. Combined Spaces. Combined living room and dining room spaces shall comply with the requirements of Table 16.24.400 if the total area is equal to that required for separate rooms and if the space is located so as to function as a combination living room and dining room.

M. Efficiency Unit. Nothing in this section shall prohibit an efficiency living unit from meeting the following requirements:

1. An efficiency living unit occupied by not more than two occupants shall have a clear floor area of not less than two hundred and twenty square feet. A unit occupied by three occupants shall have a clear floor area of not less than three hundred and twenty square feet. These required areas shall be exclusive of the areas required by subsections (M)(2) and (M)(3) of this section.

2. An efficiency living unit shall be provided with a kitchen sink, cooking appliance, and refrigeration facilities, each having a clear working space of not less than thirty inches in front. Light and ventilation shall be provided in conformance with this chapter.

3. An efficiency living unit shall be provided with a separate bathroom containing a water closet, lavatory, and bathtub or shower.

4. An efficiency living unit shall have a maximum number of occupants of three.

N. Food Preparation. All spaces to be occupied for food preparation purposes shall contain suitable space and equipment to store, prepare and serve foods in a sanitary manner. There shall be adequate facilities and services for the sanitary disposal of food wastes and refuse, including facilities for temporary storage. (Ord. BL2001-585 § 1 (part), 2001)

16.24.410 Plumbing fixtures and fixture requirements.

A. Dwelling Units. Every dwelling unit shall contain a bathtub or shower, lavatory, water closet, and kitchen sink which shall be maintained in a sanitary, safe working condition. The lavatory shall be placed in the same room as the water closet or be located in close proximity to the door leading directly into the room in which such water closet is located. A kitchen sink shall not be used as a substitute for the required lavatory.

B. Rooming Houses. At least one water closet, lavatory, and bathtub or shower shall be supplied for each four rooming units in a rooming house.

C. Hotel. Where private water closets, lavatories, and baths or showers are not provided, one water closet, one lavatory, and one bathtub or shower having access from a public hallway shall be provided for each ten occupants of any hotel.

D. Employee Facilities. A minimum of one water closet, one lavatory, and one drinking facility shall be available to employees. Drinking facilities shall be a drinking fountain, water cooler, bottled water cooler, or disposable cups next to a sink or water dispenser. Drinking facilities shall not be located in toilet rooms or bathrooms. (Ord. BL2001-585 § 1 (part), 2001)

16.24.420 Toilet rooms.

A. Privacy. Toilet rooms and bathrooms shall provide privacy and shall not constitute the only passageway to a hall, other space, or to the exterior. A door and interior locking device shall be provided for all common or shared bathrooms and toilet rooms in a multiple dwelling.

B. Location. Toilet rooms and bathrooms serving hotel units, rooming units, or dormitory units, shall have access by traversing not more than one flight of stairs and shall have access from a common hall or passageway.

C. Location of Employee Toilet Facilities. Toilet facilities for employee use shall have access from within the employees' regular working area. Required toilet facilities shall be located not more than one story above or below the employees' regular working area and the path of travel to such facilities shall not exceed a distance of five hundred feet. Employee facilities shall either be separate facilities or public customer facilities.

Exception: Facilities that are required for employees in storage structures or kiosks, which are located in adjacent structures under the same ownership, lease or control, shall not exceed a travel distance of five hundred feet from the employees' regular working area to the facilities. (Ord. BL2001-585 § 1 (part), 2001)

16.24.430 Plumbing systems and fixtures—General.

A. General. All plumbing fixtures shall be properly installed and maintained in working order, shall be kept free from obstructions, leaks and defects, and shall be capable of performing the function for which such plumbing fixtures are designed. All plumbing fixtures shall be maintained in a safe, sanitary and functional condition.

B. Fixture Clearances. All plumbing fixtures shall have adequate clearances for usage and cleaning.

C. Plumbing System Hazards. Where it is found that a plumbing fixture or system in a building, structure, or premises constitutes a hazard to the occupants or the building, structure, or premises by reason of inadequate service, inadequate venting, cross connection, back siphonage, improper installation, deterioration, damage, or for similar reasons, the director shall require the defects to be corrected to eliminate the hazard. (Ord. BL2001-585 § 1 (part), 2001)

16.24.440 Water system.

A. General. Every sink, lavatory, bathtub or shower, drinking fountain, water closet, or other plumbing fixture shall be properly connected to either a public water system or to an approved private water system. All kitchen sinks, lavatories, laundry facilities, bathtubs, and showers shall be supplied with hot or tempered and cold running water in accordance with the plumbing code.

B. Contamination. The water supply shall be maintained free from contamination and all water inlets for plumbing fixtures shall be located above the flood-level rim of the fixture. Shampoo basin faucets, janitor sink faucets, and other hose bibs or faucets to which hoses are attached and left in place shall be protected by an approved atmospheric-type vacuum breaker or an approved permanently attached hose connection vacuum breaker.

C. Supply. The water supply system shall be installed and maintained to provide a supply of water to plumbing fixtures, devices, and appurtenances in sufficient volume and at pressures adequate to enable the fixtures to function properly, safely, and free from defects and leaks.

D. Water Heating Facilities. Water heating facilities shall be properly installed and maintained, and shall provide an adequate amount of water to be drawn at every required sink, lavatory, bathtub, shower, and laundry facility at a temperature of not less than one hundred twenty degrees Fahrenheit. A gas-burning water heater shall not be located in any bathroom, toilet room, bedroom, or other occupied room normally kept closed, unless adequate combustion air is provided. An approved combination temperature and pressure-relief valve and relief valve discharge pipe shall be properly installed and maintained on water heaters. (Ord. BL2001-585 § 1 (part), 2001)

16.24.450 Sanitary drainage system.

A. General. All plumbing fixtures shall be properly connected to either a public sewer system or to an approved private sewage disposal system.

B. Maintenance. Every plumbing stack, vent, and waste and sewer line shall function properly and be kept free from obstructions, leaks, and defects. (Ord. BL2001-585 § 1 (part), 2001)

16.24.460 Reserved.

16.24.470 Heating facilities.

A. Facilities Required. Heating facilities shall be provided in buildings and structures as required by this section.

B. Residential Occupancies. Dwellings shall be provided with heating facilities capable of maintaining a room temperature of sixty-five degrees Fahrenheit in all habitable rooms, bathrooms, and toilet rooms based on a winter outdoor design temperature of fourteen degrees

Fahrenheit, in accordance with Appendix D of the 2000 Edition of the Standard Plumbing Code. Cooking appliances shall not be used to provide space heating to meet the requirements of this section.

C. Heat Supply. Every owner, lessee, or operator of any building or structure who rents, leases, or lets one or more dwelling units, rooming units, dormitory rooms, or guestrooms on terms, either expressed or implied, to furnish heat to the occupants thereof shall supply heat during the period from October 1st to April 30th to maintain a temperature of not less than sixty-five degrees Fahrenheit in all habitable rooms, bathrooms, and toilet rooms.

Exception: When the outdoor temperature is below the winter outdoor design temperature for the locality, maintenance of the minimum room temperature shall not be required provided that the heating system is operating at its full design capacity.

D. Occupiable Work Spaces. Indoor occupiable work spaces shall be supplied with heat during the period from October 1st to April 30th to maintain a temperature of not less than sixty-five degrees Fahrenheit, when the spaces are occupied. Exceptions:

1. Processing, storage, and operation areas that require cooling or special temperature conditions;

2. Areas in which persons are primarily engaged in vigorous physical activities.

E. Room Temperature Measurement. Required room temperatures shall be measured three feet above the floor at a point near the center of the room and at points two feet inward from the center of each exterior wall. (Ord. BL2001-585 § 1 (part), 2001)

16.24.480 Mechanical equipment.

A. Mechanical Appliances. All mechanical appliances, fireplaces, solid fuel-burning appliances, cooking appliances, and water heating appliances shall be properly installed and maintained in a safe working condition and shall be capable of performing the intended function.

B. Removal of Combustion Products. All fuel-burning equipment and appliances shall be connected to an approved chimney or vent.

Exception: Fuel-burning equipment and appliances that are labeled by the manufacturer for ventless operation.

C. Clearances. All required clearances from any mechanical equipment to combustible materials shall be maintained.

D. Safety Controls. All safety controls for fuel-burning equipment shall be maintained in effective operation.

E. Combustion Air. A supply of air for complete combustion of the fuel and for adequate and safe ventilation of the space containing the fuel-burning equipment shall be provided for the fuel-burning equipment.

F. Energy Conservation Devices. Devices intended to reduce fuel consumption by attachment to a fuel-burning appliance, to the fuel supply line thereto, or to the vent outlet or vent piping system therefrom, shall not be installed unless labeled by for such purpose and the installation is specifically approved. (Ord. BL2001-585 § 1 (part), 2001)

16.24.490 Electrical facilities.

A. Facilities Required. Every occupied building or structure shall be provided with an electrical system in compliance with the requirements of this section and Section 16.24.530.

B. Service. Service to a dwelling unit shall be a minimum of one hundred ampere, with three-wire capacity and service equipment shall be dead-front, having no live parts exposed whereby accidental contact could be made. Type "S" fuses shall be installed when fused equipment is used.

Exception: Existing service of sixty ampere, three-wire capacity, and feeders of thirty ampere or larger two-or-three-wire capacity shall be accepted if adequate for the electrical load being served.

C. Electrical System Hazards. Where it is found that the electrical system in a building or structure constitutes a hazard to the occupants or the building or structure by reason of inadequate service, improper fusing, insufficient receptacle and lighting outlets, improper wiring or installation, deterioration, damage, or for similar reasons, the director shall require the defects to be corrected to eliminate the hazard. (Ord. BL2001-585 § 1 (part), 2001)

16.24.500 Electrical equipment.

A. Installation. All electrical equipment, wiring, and appliances shall be properly installed and maintained in a safe and approved manner.

B. Receptacles. Every habitable space in a dwelling shall contain at least two separate and remote receptacle outlets. Every laundry area shall contain at least one grounded-type receptacle or a receptacle with a ground fault circuit interrupter. Every bathroom shall contain at least one receptacle. Any new bathroom receptacle outlet shall have ground fault circuit interrupter protection.

C. Lighting Fixtures. Every public hall, interior stairway, toilet room, kitchen, bathroom, laundry room, boiler room, and furnace room shall contain at least one

electric lighting fixture. (Ord. BL2001-585 § 1 (part), 2001)

16.24.510 Elevators, escalators and dumbwaiters.

A. General. Elevators, dumbwaiters, and escalators shall be maintained to sustain safely all imposed loads, to operate properly, and to be free from physical and fire hazards. The most current certificate of inspection shall be on display at all times within any elevator or shall be attached to the escalator or dumbwaiter; or the certificate shall be available for public inspection in the office of the building or structure operator.

B. Elevators. In buildings equipped with passenger elevators, at least one elevator shall be maintained in operation at all times when the building is occupied.

Exception: Buildings equipped with only one elevator shall be permitted to have the elevator temporarily out of service for testing or servicing. (Ord. BL2001-585 § 1 (part), 2001)

16.24.520 Duct systems—General.

Duct systems shall be maintained so as to be free of obstructions and capable of performing their required function. (Ord. BL2001-585 § 1 (part), 2001)

16.24.530 Fire safety requirements—Means of egress.

A. General. A safe, continuous, and unobstructed means of egress shall be provided from any point in a building or structure to the public way, in accordance with the requirements of the building code and fire code as adopted by the metropolitan government.

B. Emergency Escape and Rescue Openings. Basements with habitable rooms and every sleeping room shall have at least one openable emergency escape and rescue window or exterior door opening. Where openings are provided as a means of escape and rescue, they shall have a sill height of not more than forty-four inches. The net clear opening dimension required by this chapter shall be obtained by the normal operation of the window or door opening from the inside. Escape and rescue window openings with a sill height below the adjacent ground level shall be provided with an approved window well.

C. Minimum Net Clear Opening. All emergency escape and rescue openings shall have a minimum net clear opening of four square feet.

D. Minimum Net Clear Opening Height. All emergency escape and rescue openings shall have minimum net clear opening height twenty-four inches.

E. Minimum Net Clear Opening Width. All emergency escape and rescue openings shall have a minimum net clear opening width of twenty inches.

F. Operation. Required emergency escape and rescue openings shall be operational from the inside of the room or space without the use of keys or special tools, knowledge, or effort. Bars, grilles, grates, or similar devices are permitted to be placed over emergency escape and rescue openings provided the minimum net clear opening size complies with the building code and such devices shall be releasable or removable from the inside without the use of a key, tool, or force greater than that which is required for normal operation of the escape and rescue opening. Where such bars, grilles, grates, or similar devices are installed in existing buildings, smoke detectors shall be installed in accordance with Section 16.24.550.

G. Aisles. The required width of aisles in accordance with the fire code shall be unobstructed.

H. Locked Doors. All means of egress doors shall be readily openable from the side from which egress is to be made without the need for keys, tools, or special knowledge or effort, except where the door hardware conforms to that permitted by the building code. (Ord. BL2001-585 § 1 (part), 2001)

16.24.540 Fire resistance ratings.

A. Fire-Resistance-Rated-Assemblies. The required fire-resistance rating of fire-resistance-rated walls, fire stops, shaft enclosures, partitions, and floors shall be maintained.

B. Opening Protectives. Required opening protectives shall be maintained in an operative condition. All fire and smoke stop doors shall be maintained in operable condition. Fire doors and smoke barrier doors shall not be blocked, obstructed, or otherwise made inoperable. (Ord. BL2001-585 § 1 (part), 2001)

16.24.550 Fire protection systems.

A. Smoke Detectors. Existing Group R occupancies not already provided with single-station smoke alarms/detectors shall be provided with approved single-station smoke alarms/detectors.

B. Installation.

1. In existing one- and two-family dwellings, approved single-station smoke alarms/detectors shall be installed:

a. Outside of each separate sleeping area, in the immediate vicinity of the sleeping rooms; and

b. On each additional story of the dwelling unit including basements.

2. In all other existing Group R occupancies, installation shall be in accordance with the fire code.

C. Power Source. In Group R occupancies, single-station smoke alarms/detectors shall be battery operated or shall receive their primary power from the building wiring provided that such wiring is served from a commercial source. When power is provided by the building wiring, the wiring shall be permanent and without a disconnecting switch other than those required for overcurrent protection. (Ord. BL2001-585 § 1 (part), 2001)

Article VI. Dwellings and Structures Unfit for Human Habitation, Occupation, or Use

16.24.560 Findings, appointment, and purpose.

The metropolitan council finds that there exists in Metropolitan Nashville and Davidson County dwellings and structures that are unfit for human habitation, occupation, or use due to dilapidation, defects increasing the hazards of fire, accident or other calamities, lack of ventilation, light or sanitary facilities, or due to other conditions rendering such structures unsafe or unsanitary, or dangerous or detrimental to the health, safety or morals, or otherwise inimical to the welfare of the residents of Metropolitan Nashville and Davidson County. Therefore, the director of the department of codes administration is hereby appointed to enforce this chapter and to implement the power conferred upon the Metropolitan Government by Tennessee Code Annotated, Title 13, Chapter 21 (T.C.A. § 13-21-101 et seq.) to exercise its police powers to repair, close, or demolish the aforementioned dwellings and structures in the manner herein provided. (Ord. BL2001-585 § 1 (part), 2001)

16.24.570 Determination of unfitness for habitation, occupation or use.

Any dwelling or structure is unfit for human habitation, occupation, or use if conditions exist which, in the opinion of the director, are dangerous or injurious to the health, safety, or morals of the occupants of dwelling or structure, the occupants of neighboring buildings, structures, or premises, or other residents of the metropolitan government area. Such conditions may include the following, without limiting the generality of the foregoing, defects therein increasing the hazards of fire, accident, or other calamities; inadequate means of egress; lack of adequate ventilation, light, or sanitary facilities; dilapidation; disrepair; structural defects; and unsanitary conditions. (Ord. BL2001-585 § 1 (part), 2001)

16.24.580 Complaint procedures—Hearing.

Whenever a petition is filed with the department by the metropolitan development and housing authority ("MDHA"), other public authority or its agent, or at least five residents of Davidson County charging that any dwelling or structure is unfit for human habitation, occupation, or use, or whenever it appears to the director or the director's agent (on the director's own motion), that any dwelling or structure is unfit for human habitation, occupation, or use, the director shall, if the preliminary investigation discloses a basis for such charges, issue and cause to be served upon the owner of and parties in interest of such structure, a complaint, stating the charges in that respect and containing a notice that a hearing will be held before the director or the director's designated agent at a place therein fixed, not less than ten days nor more than thirty days after the serving of such complaint, that:

1. The owner or parties in interest or both shall be given the right to file an answer to the complaint and to appear in person, or otherwise, and give testimony at the place and time fixed in the complaint; and

2. The rules of evidence prevailing in courts of law or equity shall not be controlling in hearings before the director. (Ord. BL2001-585 § 1 (part), 2001)

16.24.590 Order to repair, vacate or demolish required when.

If, after such notice and hearing, as provided in Section 16.24.580, the director or the director's authorized agent determines that the dwelling or structure under consideration is unfit for human habitation, occupation, or use, the individual making the determination shall state in writing the findings of fact in support of such determination and shall issue and cause to be served upon the owner thereof an order:

1. If the repair, alteration, or improvement of such dwelling, structure or accessory dwelling or structure can be made at a cost not to exceed fifty percent of the value of the dwelling or structure, requiring the owner, within the time specified in the order, to repair, alter or improve such building or structure to render it fit for human habitation, occupation or use, or to vacate and close the building or structure as a place of human habitation, occupation or use. The order shall allow a reasonable time for the performance of any act it requires. For the purposes of this article, the value of the dwelling or structure shall be assumed to be that established by the tax assessor's office.

a. If the owner fails to comply with the order to repair, alter, improve, or vacate and close the dwelling or structure, the director may cause such dwelling or

structure to be repaired, altered, improved, or vacated and closed, and may cause to be posted on the main entrance of any dwelling or structure so vacated and closed, a placard with the following words, "This Building Is Unfit for Human Habitation, Occupation or Use. The Use or Occupancy of This Building is Unlawful and Prohibited by Order of the Director of the Department of Codes Administration." Such placard shall remain posted until the required repairs, alterations, or improvements are made. It is unlawful for any person to remove such notice without written permission of the director or for any person to enter such dwelling or structure except for the purpose of making the required repairs, alterations, or improvements.

b. A dwelling or structure closed pursuant to this section shall be securely closed by boarding-up all exterior openings such that a person could not gain entry without the use of a key, special tool, or significant physical effort. It shall be the duty of the owner to ensure that dwelling or structure remains closed.

c. It shall be unlawful to occupy or use a dwelling or structure ordered vacated pursuant to this section until a valid certificate of occupancy has been issued.

2. If the repair, alteration, or improvement of such dwelling, structure, or accessory dwelling or structure cannot be made at a cost not to exceed fifty percent of the value of the dwelling or structure, requiring the owner within the time specified in the order to remove or demolish such dwelling or structure. For the purposes of this article, the value of the dwelling or structure shall be assumed to be that established by the tax assessor's office.

a. The director, upon issuing an order to the owner to remove or demolish, shall forward a copy of said order to the vacant property review commission ("the commission"), and, for the purposes of assisting the commission in its review, supply the commission with a copy of the related structural and dwelling unit inspection record, complaint, and title research report. The department of codes administration may supplement these documents with pertinent information acquired during its investigation and hearing.

b. If the owner fails to comply with an order to remove or demolish the dwelling or structure, the director may cause such dwelling or structure to be removed or demolished, except that when the director has been notified by the commission of its intent to gain control of such dwelling or structure prior to the letting of bids for demolition, in which case the department shall suspend its effort to remove or demolish the dwelling or structure pending notice to proceed from the commission. (Ord. BL2001-585 § 1 (part), 2001)

16.24.600 Complaint and order—Service.

Any complaint and order issued pursuant to this article shall be served upon owners and parties in interest either personally or by certified or registered mail, but if the whereabouts of any such person or entity is unknown and the same cannot be ascertained by the director in the exercise of reasonable diligence, and the director shall make an affidavit to that effect, then the serving of such complaint or order of such persons or entities may be made by publishing the same once each week for two consecutive weeks in a newspaper printed and published and in general circulation throughout the area of jurisdiction of the metropolitan government. A copy of such complaint or order shall be posted in a conspicuous place upon the dwelling or structure affected by such complaint or order. A copy of such complaint and order shall be filed in the register's office of Davidson County, and such filing of the complaint or order shall have the same force and effect as other lis pendens notices provided by law. (Ord. BL2001-585 § 1 (part), 2001)

16.24.610 Appeal.

The owner, or the owner's authorized agent, and any party in interest, or its authorized agent shall have the right to appeal from the order of the director and to appear before the board of property standards and appeals at a specified time and place to show cause why they should not comply with any notice issued pursuant to this chapter. Requests for appeals shall be by written petition completed on forms supplied by the director and shall be filed with the director within twenty days from the date of service. (Ord. BL2001-585 § 1 (part), 2001)

16.24.620 Warning placards.

Where upon inspection, a vacant dwelling or structure is determined to be unfit for human occupation or use, the director shall immediately cause to be on the main entrance a placard with the following words, "This Building Is Unfit for Human Habitation, Occupation or Use. The Use or Occupancy of This Building is Unlawful and Prohibited by Order of the Director of the Department of Codes Administration." Such notice shall remain posted until the required repairs, alterations, or improvements are made or until such time as the dwelling or structure is removed or demolished. It is unlawful for any person to remove such placard without written permission of the director or for any person to enter such dwelling or structure except for the purpose of making the required repairs, alterations, or improvements, or removing or demolishing the dwelling or structure. (Ord. BL2001-585 § 1 (part), 2001)

16.24.630 Removal or demolition of buildings—Notice to vacate.

If the owner fails to comply with an order to remove or demolish a building or structure, the director may cause such building or structure to be removed or demolished to secure the intent of this chapter. When doing so, the director shall, whenever an occupied building or structure has been condemned and ordered removed or demolished, and the owner has failed to appeal to the board of property standards and appeals or has unsuccessfully appealed to said board, notify the tenant of such action in writing, and order such tenant to vacate the premises within a specified time, if necessary, or to do and perform such acts or works as may be necessary to fulfill the orders set forth in such notice. Should such tenants fail or refuse to promptly comply with such notice or orders, they shall be deemed guilty of a violation of this chapter. (Ord. BL2001-585 § 1 (part), 2001)

16.24.640 Demolition of building—Disposal of debris.

Every person repairing, altering, improving, moving, or demolishing a building or structure pursuant to this chapter and removing debris therefrom shall cause all such debris to be thoroughly dampened with water or covered to prevent the spread of such debris or dust to adjacent properties, whether public or private. In the case of demolition, it shall be the responsibility of the person demolishing a dwelling or structure to remove from the premises all demolition debris resulting from such demolition, to properly dispose of all demolition debris in a manner prescribed by the director of public works, and to fill any below-grade area with approved fill materials to grade level or to provide suitable protective fencing around any such below-grade area. (Ord. BL2001-585 § 1 (part), 2001)

16.24.650 Costs of repair or demolition—Lien on property.

A. The amount of the direct and indirect costs of such repairs, alterations, or improvements, or vacating and closing, or removal or demolition by the department shall be assessed against the owner of the property, and shall, upon the filing of the notice with the office of the Register of Deeds of Davidson County, be a lien on the property in favor of the Metropolitan Government of Nashville and Davidson County, second only to liens of the State of Tennessee and Metropolitan Government of Nashville and Davidson County for taxes, any lien of the Metropolitan Government of Nashville and Davidson County for special assessments, and any valid lien, right or interest in such property duly recorded or duly perfected by filing, prior to the filing of such notice. These costs shall be collected by the metropolitan trustee at the same time and in the same manner as property taxes are collected. If the owner fails to pay the costs, they may be collected at the same time and in the same manner as delinquent property taxes are collected and shall be subject to the same penalty and interest as delinquent property taxes. Indirect costs that may be assessed against the property owner shall include, but not be limited to, the cost of postage, advertising, title searches, and recording fees and shall include an administrative fee in the amount of seven hundred twenty-five dollars per demolition project to cover staff time in the administration of each demolition case.

B. In addition, the metropolitan government may collect the costs assessed against the owner through an action for debt filed in any court of competent jurisdiction. The metropolitan government may bring one action for debt against more than one or all of the owners of properties against whom said costs have been assessed, and the fact that multiple owners have been joined in one action shall not be considered by the court as a misjoinder of parties. If the structure is removed or demolished by the director, the director shall sell the materials of such structure and shall credit the proceeds of such sale against the cost of the removal or demolition, and any balance remaining shall be deposited in the chancery court by the director, shall be secured in such manner as may be directed by such court, and shall be disbursed by such court to the person found to be entitled thereto by final order or decree of such court. Nothing in this section shall be construed to impair or limit in any way the power of the metropolitan government to define and declare nuisances and to cause their removal or abatement, by summary proceedings or otherwise. (Ord. BL2010-642 § 11, 2010; Ord. BL2004-175§ 4, 2004; Ord. BL2001-585 § 1 (part), 2001)

16.24.660 Failure to comply—Penalty.

The owner, party in interest, lessee, agent, or person or entity in control of such dwelling or structure that is unfit for human occupation or use, upon failure or refusal to comply with a notice to repair, alter, improve, vacate and close, remove or demolish, such dwelling or structure, shall be guilty of a misdemeanor and subject to the penalties prescribed in this code. (Ord. BL2001-585 § 1 (part), 2001)

Chapter 16.28

BUILDING PERMITS

Sections:

16.28.010 Required when.
16.28.020 Blasting—Permit required—Regulations.
16.28.030 Normal maintenance repair—Permits not required.
16.28.040 Application.
16.28.050 Plans and specifications—Requirements.
16.28.060 Plot diagrams required.
16.28.070 Applications—Timely action required.
16.28.080 Applications—Examination by director—Exception.
16.28.090 Reviewed drawings—Marked—Copy at jobsite.
16.28.100 General liability insurance required when.
16.28.110 Fee schedule—Building permits.
16.28.120 Valuations—Computations.
16.28.130 Failure to obtain permit—Fees tripled.
16.28.140 Fees—Refunds.
16.28.150 Foundations permit—Utility installations.
16.28.152 Structural framing permit.
16.28.154 Building shell permit.
16.28.156 Building shell finish-out permit.
16.28.160 Private water system—Approval required.
16.28.170 Encroachment on street lines—Special application.
16.28.175 Moving of houses, buildings or structures.
16.28.180 Applications—Abandonment—Extensions.
16.28.190 Issuance.
16.28.195 Issuance of permits for the demolition of historic structures and sites.
16.28.200 Permit denial conditions.
16.28.210 Work authorized—Plumbing and electrical permit requirements applicable.
16.28.220 Nontransferability.
16.28.230 Approved permits and construction hours signs—Posted at premises.
16.28.235 Posting of information sign for major projects required.
16.28.240 Interpretation—Expiration—Extensions.
16.28.250 Supervision required when.
16.28.260 Change in contractor—Reissuance of permit—Fees.

16.28.010 Required when.

It shall be the duty of every person desiring to construct, alter, repair, enlarge, move or demolish any building or structure or part thereof or any appurtenances connected or attached thereto, or to install any heating, air conditioning or ventilating system or unit or any equipment, device, appliance or fixture, required or governed by this chapter, or to repair or replace any damage to a building or structure caused by termites, or to erect or construct any sign, billboard or similar structure governed by this chapter, or to do or cause any such work to be done, for which a permit is required, to first make application to the director of codes administration and obtain the required permits therefor, except as such may be specifically excluded by Section 16.04.020. (Prior code § 11-1-31)

16.28.020 Blasting—Permit required—Regulations.

A. It is unlawful for any person to perform any drilling or blasting of rock, earth, trees, etc., with any form of explosives, without first having obtained a permit for such work from the director of codes administration. All such blasting as may be permitted shall be performed between the hours of six a.m. and six p.m. and, where necessary, shall be properly covered or barricaded prior to the execution of the blasting operation.

B. It shall be the responsibility of the person engaged in any blasting activity to give proper notice and warning to all property owners, pedestrians and motor vehicle traffic in the area where such blasting is to be made, prior to detonation of such blast.

C. An applicant for a blasting permit must be experienced and qualified in the handling and discharge of explosives and blasting agents, must be twenty-one years of age or over and must furnish all necessary information concerning the amount of the charge and the location. The minimum public liability insurance as required by Section 16.28.100 shall be one hundred thousand dollars/three hundred thousand dollars bodily

injury and fifty thousand dollars property damage. (Prior code § 11-1-31.1)

16.28.030 Normal maintenance repair—Permits not required.

A. Normal maintenance repairs of an existing building or structure may with the approval of the building official be made without permit, provided such repairs do not violate any provisions of this chapter.

Normal maintenance repairs shall be defined as repairs to an existing building or structure, including but not limited to exterior and interior painting, papering, glazing of windows and doors, floor finishing, minor repairs to chimneys, stairs, porches, underpinning and repairs to an existing roof not to exceed thirty-three percent of the roof area.

B. Replacing an existing roof on an existing one or two family dwelling is considered normal maintenance and does not require a permit. Work shall conform to provisions of the adopted International Residential Code for One- and Two-Family Dwellings. (Ord. BL2015-1145 § 18, 2015; Ord. 95-1487 § 87, 1995)

16.28.040 Application.

A. Each application for a permit required by this chapter with the required fee, shall be filed with the director of codes administration on a form furnished by him, and shall contain a general description of the proposed work and its location. The application shall be signed by the owner or his authorized agent.

B. Each application for a permit shall indicate the proposed occupancy of all parts of the building and of that portion of the site or lot, if any, not covered by the building or structure, and shall contain such other information as may be required by the director.

C. No permit shall be issued pursuant to this chapter if, within the past twelve months, the applicant or property owner has been found by a court of law having jurisdiction over such matters of violating a stop work order issued pursuant to Section 16.04.110 of the metropolitan code of laws for the property for which the permit is sought, or of violating Tennessee Code Annotated § 7-51-1201 by demolishing a historic residential structure on the property for which the permit is sought.

D. Every application for a permit required by this chapter shall include a proposed plan for the disposal of construction and demolition waste generated on the property by the activity for which the permit is sought. Such plan shall include a statement, signed by the applicant, providing that no construction and demolition waste will be stored on the property that is not in compliance with Chapter 16.24 of the Metropolitan Code of Laws. (Amdt. 1 to Ord. BL2006-1263 § 1, 2006; Ord. BL2006-1263 § 1, 2006; Ord. BL2006-1069 § 1, 2006; Ord. BL2005-921 § 1, 2006; prior code § 11-1-33)

16.28.050 Plans and specifications—Requirements.

A. When required by the director of codes administration, two or more copies of specifications and of drawings drawn to scale with sufficient clarity and detail to indicate the nature and character of the work shall accompany every application for a permit. Such drawings and specifications shall contain information, in the form of notes or otherwise, as to the quality of materials, where quality is essential to conformity with this chapter. Such information shall be specific, and this chapter shall not be cited as a whole or in part, nor shall the term "legal" or its equivalent be used, as a substitute for specific information.

B. The director may require details, computations, stress diagrams and other data necessary to describe the construction and basis of calculations and they shall bear the signature of the person responsible for the design.

C. All drawings, specifications or accompanying data shall bear the name and address of the designer. Drawings, specifications and accompanying data for buildings, structures or appurtenances shall comply with the provisions of Section 62-2-101, et seq. of the Tennessee Code Annotated. When required, each drawing comprising the set of construction documents, specifications and accompanying data shall bear the seal of the appropriate architect and/or engineer responsible for the preparation thereof. The director of the department of codes administration shall not require of such designers, mechanics or builders, drawings or specifications in more detail than the minimum required to ascertain compliance with the applicable code. Inspections resulting in disapproval shall state any requirements necessary for approval.

D. Plans for all buildings shall indicate how required structural and fire-resistive integrity will be maintained where a penetration of a required fire-resistive wall, floor or partition will be made for electrical, mechanical, plumbing and communication conduits, pipes and systems, and also indicate in sufficient detail how the fire integrity will be maintained where required fire-resistive floors intersect the exterior walls.

E. Foundation plans for prefabricated or factory-built structures shall be sealed by a civil engineer registered to practice in the State of Tennessee. (Ord. 89-1092 § 1, 1990; prior code § 11-1-34)

16.28.060 Plot diagrams required.

The director of codes administration shall require drawings showing the location of the proposed building or structure and of every existing building or structure on the site or lot. He may also require a boundary line survey, if necessary, prepared by a qualified surveyor. (Prior code § 11-1-35)

16.28.070 Applications—Timely action required.

The director of codes administration shall act upon an application for a permit under this chapter, with plans as filed or as amended, without unnecessary or unreasonable delay. (Prior code § 11-1-37)

16.28.080 Applications—Examination by director—Exception.

A. The director of codes administration shall examine or cause to be examined each application for permit and the drawings and computations filed therewith and shall ascertain by such examinations whether the construction indicated and described is in accordance with the requirements of this chapter and all other pertinent laws or ordinances.

B. The director of codes administration and the fire marshal may accept plans and a sworn affidavit from a registered architect or engineer, affixed with his or her seal, stating that the plans submitted conform with all provisions of this chapter and all other pertinent laws and ordinances. The director of codes administration and fire marshall may rely upon such affidavit and in their discretion approve the plans submitted therewith without further review. In such event, the architect or engineer having provided the affidavit shall assume full responsibility for the compliance of such plans with all provisions of this chapter and other pertinent laws or ordinances. Architects and engineers hereinabove referred to shall be registered under the laws of this state regulating the practice of architecture and engineering. Nothing in this chapter shall be construed to waive inspection requirements or the authority of the director of codes administration or fire marshall to reject work not in compliance with the provisions of this chapter or other applicable laws or ordinances. (Ord. BL2021-1012 § 1, 2021; Ord. BL2007-1390 § 15, 2007; prior code § 11-1-38)

16.28.090 Reviewed drawings—Marked—Copy at jobsite.

When the director of codes administration issues a permit, he shall endorse, in writing or by stamp, both sets of plans "Reviewed." One set of drawings so reviewed shall be retained by the director and the other set shall be returned to the applicant. The reviewed drawings shall be kept at the site of work and shall be open to inspection by the director or his authorized representative. (Ord. 95-1487 § 86 (part), 1995; prior code § 11-1-39)

16.28.100 General liability insurance required when.

Nothing in this chapter shall be construed as prohibiting the director of codes administration, as conditions may seem to warrant, from requiring a certificate of general liability insurance for such amount as he may deem necessary, with an insurance company licensed in the State of Tennessee, as a condition precedent to the issuance of any permit required by this chapter. Such insurance as may be required shall not be canceled without at least thirty days' prior notice, in writing, to the director of codes administration. (Ord. 94-1226 § 10, 1994)

16.28.110 Fee schedule—Building permits.

A. Building Permit Fees. The fee for building permits shall be determined as set forth in this section.

1. Building permit fees for residential construction based on valuation. Residential construction includes one-family and two-family residential construction and townhouses as defined by the 2018 Edition of the International Residential Code, but not multi-family construction shall be $5.00 per $1,000 total valuation.

2. Building permit fees for commercial construction and all other construction other than one-family and two-family residential construction and townhouses as defined by the 2018 Edition of the International Residential Code, shall be based on valuation.

Total Valuation		Fees
$0.00 to $2,000.00		$40.39
$2,000.01 to $50,000.00	to	$40.39 for the first $2,000.00 plus $6.92 for each additional thousand or fraction thereof, to and including $50,000.00.
$50,000.01 to $100,000.00	to	$372.71for the first $50,000.00 plus $5.57 for each additional thousand or fraction thereof, to and including $100,000.00.
$100,000.01 to $500,000.00	to	$651.38 for the first $100,000.00 plus $4.19 for each additional thousand or fraction thereof, to and including $500,000.00.

Total Valuation	Fees
$500,000.01 and up	$2,326.84 for the first $500,000.00 plus $2.79 for each additional thousand or fraction thereof.

B. Moving of Buildings or Structures. For the moving of any building or structure where such necessitates the transportation of such building or structure in public rights-of-way or on public streets, the fee shall be two hundred fifty-two dollars; except, that such fee shall not be charged for the moving of temporary construction office sheds, mobile homes or house trailers.

C. Signs. For the erection, construction or alteration of any sign, billboard, awning, marquee or similar structure, the fee shall be determined from Section A.2. above using the schedule for commercial construction. The minimum fee for a permit to erect a sign shall be fifty-five dollars.

D. Trailers and Mobile Homes. For each trailer or mobile home located on an individual site, lot, trailer park, mobile home subdivision or apartment complex, there shall be a fee of fifty-five dollars, such fee to be charged on the original location of a trailer or mobile home on the site. For each succeeding trailer or mobile home moved onto a lot not within a trailer park, mobile home subdivision or apartment complex, there shall be required a use and occupancy permit.

E. Certificate of Occupancy and Compliance. For the issuance of a use and occupancy permit or certificate of compliance where there has been no building permit issued, the fee shall be fifty-five dollars.

F. Re-inspection Fee. For a re-inspection, the fee shall be fifty dollars.

G. Plans Examination Fees.

1. For the examination for code compliance of plans, specifications, drawings and other data, the plans examination fee shall be:

Total Valuation	Fees
$0.00 to $275,000.00	One-half of the building permit fee as set forth in subsection A of this section.
$275,000.01 to $5,000,000.00	$1.338.54 for the first $275,000.00 plus $0.18 per thousand for each additional thousand or fraction thereof, to and including $5,000,000.00.
$5,000,000.01 and above	$2,181.82 for the first $5,000,000.00 plus $0.07 per thousand for each additional thousand or fraction thereof.

Such plan-examination fee is in addition to the building permit fee and in no case shall this be refunded even if there is not a subsequent building permit issued. If an issued building permit is due a refund as per Section 16.28.140, in no case shall the plans examination fee be refunded.

2. Exceptions from plans examination fee:

a. One- and two-family dwelling building permits;

b. Townhouse building permits;

c. Demolition permits;

d. Blasting permits;

H. Use Verification Letter. The fee for a letter to confirm the zoning designation and entitlements within the designation shall be fifty dollars.

I. Beer and Liquor Letter. The fee for a letter to confirm the distance requirements pertaining to the sale of beer and liquor as required by state law shall be forty dollars.

J. Workforce housing fee adjustments.

1. In order to facilitate the provision of workforce housing within the area of the metropolitan government, the permit fees provided in subsections A. and H. of this section shall be reduced by twenty-five percent for new home construction, or the rehabilitation of existing dilapidated and vacant homes, to be used for workforce housing.

2. For purposes of this subsection, "workforce housing" means housing that meets one of the following two criteria:

a. Housing to be sold at a price at or below two and one-half times ninety-five percent of the median family income currently listed for Davidson County as established by the U.S. Department of Housing and Urban Development; or

b. Housing to be rented for at least five years at an annual rental amount that is at or below thirty percent of seventy percent of the median family income currently listed for Davidson County as established by the U.S. Department of Housing and Urban Development.

3. The director shall have the authority to promulgate rules and regulations to implement the provisions of this subsection, provided such rules and regulations are not inconsistent with the express provisions of this subsection. Applicants obtaining the twenty-five percent reduction in permit fees for workforce housing shall provide the director with a sworn affidavit that the residences constructed will satisfy the criteria set forth above and shall file a deed restriction with the Davidson County Register of Deeds requiring that the property remain a workforce housing unit for at least five years. In the event the property does not remain a workforce housing unit for at least five years, the permit holder shall pay to the metropolitan government the amount of the permit fee reduction provided above plus interest at the rate of ten percent per annum.

K. Waiver. Upon resolution by the metropolitan council, building, electrical, gas/mechanical, and/or plumbing permit fees may be waived by the director of codes administration when a state of emergency is declared by the mayor. (Ord. BL2022-1215 § 5, 2022; Ord. BL2021-717 § 2, 2021; Subst. Ord. BL2010-788 § 2, 2010; Ord. BL2010-642 § 12, 2010; Ord. BL2004-175 § 5, 2004; Ord. 95-1324 §§ 1, 2, 1995; Ord. 92-295 §§ 1—4, 1992; Ord. 92-118 §§ 21, 22, 1992; Ord. 91-1525 § 2, 1991; prior code § 11-1-42)

16.28.120 Valuations—Computations.

A. New Building or Structures and Additions. For the purpose of determining permit fees only for new buildings or structures and additions, valuations will be computed by using the "cost-per-square foot" figures as shown in the Building Valuation Data, as published by the International Code Council. The value is based on construction type, occupancy group, the building area and without use of a regional modifier. "Valuation" means total cost of all structures which includes structural, electrical, plumbing, mechanical system and other systems, interior finish, normal site preparation (excavation and backfill for building), architectural and design fees, overhead and profit, but excluding land cost.

B. Remodeling Existing Buildings or Structures. For the purpose of determining permit fees, the "valuation" means the total cost of the project(s) including the cost of materials (including those supplied by owners), interior/exterior finishes, architectural and design fees, labor, overhead, profit, including all plumbing, electrical, mechanical and other systems. (Ord. BL2004-175 § 6, 2004; Ord. 95-1324 § 3, 1995)

16.28.130 Failure to obtain permit—Fees tripled.

In addition to any other penalty imposed for failure to obtain a permit, where construction of any work, for which a permit is required, is commenced before a permit is issued, the permit fees shall be tripled. (Ord. 91-1525 § 3, 1991; prior code § 11-1-43)

16.28.140 Fees—Refunds.

A. Application for a refund of fees paid for any unused building permit, where the work covered by such permit is to be performed by another or abandoned shall be made on forms provided by the director.

B. Refunds shall only be made for that portion of a building permit fee exceeding seventy-five dollars. In no case shall any fee be refunded on any unused permit over six months old or when any inspection has been made, regardless of the fees paid. In no case shall any portion of the plans examination fee collected under Section 16.28.110 H. be refunded. (Ord. BL2010-642 § 13, 2010; Ord. 91-1525 § 4, 1991; Ord. 89-1003 §§ 2, 3, 1989; prior code § 11-1-44.1)

16.28.150 Foundations permit—Utility installations.

A. When application for a permit to erect or enlarge a building has been filed and pending issuance of such permit, the director of codes administration may, at his discretion, issue a special permit for the foundations of such building. The holder of such a special permit shall proceed at his own risk and without assurance that a permit for the superstructure will be granted.

B. When utilities are to be installed within an individual parcel of land to connect to a building or structure, a utility permit may be issued.

Exceptions: Utilities installed by the Utility Company.

C. The partial permit fee for the foundation/utility installation shall be not less than five percent of the total building as per Section 16.28.120. (Ord. BL2002-1142 § 23, 2002; Prior code § 11-1-45)

16.28.152 Structural framing permit.

A. When application for a permit to erect or enlarge a building has been filed and pending issuance of such permit, the director of codes administration may, at his discretion, issue a special permit for the structural framing of such building. This permit would include installing columns, floor systems, bearing walls, but not roof systems or nonbearing exterior walls.

B. The electrical, plumbing, and HVAC systems may be "rough-in" in the non-tenant areas.

C. The partial permit for the structural framing fee shall be not less than fifty percent of the total building valuation as per Section 16.28.120. (Ord. BL2002-1142 § 24, 2002)

16.28.154 Building shell permit.

A. When application for permit to erect or enlarge a building has been filed and pending issuance of such permit, the director of codes administration may, at his discretion, issue a special permit for the shell of such building.

B. This permit would include installing exterior walls and the roof system. The electrical, plumbing, and HVAC systems may be "rough-in" in the non-tenant areas.

C. The partial permit for the shell fee shall be not less than sixty-five percent of the total building valuation as per Section 16.28.120. If a structural framing permit has been previously issued, the partial permit for the shell fee shall be not less than fifteen percent of the

total building valuation as per Section 16.28.120. (Ord. BL2002-1142 § 25, 2002)

16.28.156 Building shell finish-out permit.

A. When application for a permit to erect or enlarge a building has been filed and pending issuance of such permit, the director of codes administration may, at his discretion, issue a special permit for finishing-out the interior of the shell of such building. This permit would include installing all interior finishes of each tenant space.

B. The electrical, plumbing, and HVAC permits may be issued to complete finish out of the installation of each system.

C. The partial permit for the tenant finish-out fee shall be not less than forty-five percent of the total building valuation as per Section 16.28.120 for a building that the total tenant area is substantiality less that the gross area of the building. If the tenant is basically equal to the gross area of the building, the partial permit for the tenant finish-out permit fee shall be not less than thirty percent of the total building valuation as per Section 16.28.120. (Ord. BL2002-1142 § 26, 2002)

16.28.160 Private water system—Approval required.

Where public water supply and sewer services are not available and it would be necessary to install a private water supply or private sewer disposal system, a building permit shall not be issued until such private water supply or private sewer disposal system has been approved by the metropolitan health department and satisfactory evidence of such approval has been submitted to the director of codes administration. (Prior code § 11-1-46)

16.28.170 Encroachment on street lines—Special application.

A. No permit shall be granted for the construction of any building or for the alteration of any building where such building is to be changed and such change will affect the exterior walls, bays, balconies or other appendages or projections fronting on any street, alley or public lane, or for the placing on any lot or premises of any building or structure removed from another lot or premises, unless the applicant has made application at the office of the director of public works for the lines of the public street on which he proposes to build, erect or locate such building.

B. It shall be the duty of the director of public works to see that the street lines are not encroached upon in any manner whatsoever, except as provided in Section 3202 of the Standard Building Code and other applicable sections of the Standard Building Code. (Ord. BL2002-1142 § 27, 2002; Ord. 95-1487 § 89, 1995; prior code § 11-1-41)

16.28.175 Moving of houses, buildings, or structures.

A. Any person desiring to move any house, building, or structure shall obtain a moving permit as provided in this title. If the house, building, or structure is to be moved to another location within the jurisdiction of the metropolitan government, the application for the moving permit shall be accompanied by an application for a foundation permit and a building permit. Said building permit shall be accompanied by complete plans and specifications showing the changes or conditions of said house, building, or structure and all contemplated improvements, signed by the owner or the owner's agent. Exception: No construction plans are required for one and two family dwellings.

B. Not later than forty-five days after the date the moving permit is obtained, the house, building, or structure must either: (1) be permanently affixed on a foundation at the new site; or (2) moved to a site outside of the jurisdiction of the metropolitan government.

C. If a house, building, or structure is removed from the jurisdiction of the metropolitan government, said house, building, or structure shall not be moved back into Metropolitan Nashville and Davidson County unless another moving permit is obtained pursuant to subsection A. of this section. Any house, building, or structure to be moved back into Metropolitan Nashville and Davidson County shall be permanently affixed on its new foundation not later than thirty days from the date the moving permit is obtained. No house, building, or structure that was not originally built within the jurisdiction of the metropolitan government shall be permitted to be moved into Metropolitan Nashville and Davidson County.

D. The owner of any house, building, or structure that is moved to another site within the jurisdiction of the metropolitan government shall make all necessary improvements required in order for said house, building, or structure to comply with the requirements of this Code not later than one hundred fifty days from the date the house, building, or structure is placed on its new foundation. The building official may grant one extension of sixty days upon a showing of delay caused by matters beyond the control of the owner or house mover.

E. Moving permits issued pursuant to this Section shall include a condition that the exterior of the house, building, or structure to be moved be covered with an appropriate housewrap.

F. Any person who fails to satisfy the above-mentioned time requirements shall be subject to the penalties set forth in Section 1.01.030 of the Metropolitan Code.

G. No permit shall be issued for the moving of any house, building, or structure if the applicant for the permit has been found guilty of violating the provisions of this section, or of failing to satisfy the conditions of a previously issued permit for the moving of any house, building, or structure, by a court of competent jurisdiction within twelve months preceding the application for said permit. (Ord. BL2010-613 § 2, 2010)

16.28.180 Applications—Abandonment—Extensions.

An application for a permit for any proposed work shall be deemed to have been abandoned six months after the date of filing, unless before then a permit shall have been issued; provided, that for cause, one or more extensions of time for periods of not exceeding ninety days each may be allowed by the director of codes administration. (Prior code § 11-1-36)

16.28.190 Issuance.

If the application for a permit under this chapter and the drawings filed therewith describe work which does not conform to the requirements of this chapter or other pertinent laws or ordinances, the director of codes administration shall not issue a permit, but shall return the drawings to the applicant with their refusal to issue such permit. Such refusal shall, when requested, be in writing and shall contain the reasons therefore. (Amdt. 1 to Ord. BL2021-842 § 1, 2021; Ord. BL2021-842 § 1, 2021; Ord. BL2020-459 § 1, 2020; Amdt. 1 to Ord. BL2006-936, 2006; Ord. BL2006-936 § 1, 2006; prior code § 11-1-47)

16.28.195 Issuance of permits for the demolition of historic structures and sites.

A. When the department of codes administration receives an application for a demolition permit for a structure which, individually or as part of a group of structures, is listed or is eligible for listing on the National Register of Historic Places, or meets the criteria of T.C.A. § 7-51-1201 as determined by the historic zoning commission, but is not included in a historic overlay district, the director of codes administration shall not issue a demolition permit for the structure until the historic zoning administrator approves the demolition permit. The historic zoning administrator must take action on the demolition permit within ninety days of the permit application, unless a longer period is agreed upon by the applicant and the historic zoning administrator. The department of codes administration shall provide notice by email to the district councilmember representing the district in which the historic structure is located within two business days after the application for the demolition permit has been filed.

B. Prior to the issuance of a demolition permit or a building permit where a portion of the structure is proposed to be removed for a structure that is included in a historic overlay district, the responsible contractor and any subcontractor shall submit signed affidavits that they have reviewed the permit to be approved including any related preservation permit and understand the limits of the demolition work to be done.

C. The following requirements shall be satisfied prior to the issuance of a demolition permit for a residential structure that was originally constructed before 1865:

1. The property owner or the owner's agent applying for a demolition permit for a residential structure that was originally constructed before 1865 shall, with the application for the permit, present to the director of codes administration and the executive director of the metropolitan historical commission at least two reports, each prepared by a qualified historic restoration consultant, stating the following:

a. The name and qualifications of the person making the report.

b. The condition of structural elements of the building proposed to be demolished. Such report should include an assessment of damage or decay, if any, to foundations, flooring, floor supports, walls and other vertical supports, ceilings, roofs and their support systems and other horizontal elements, fireplace, chimneys, exterior cladding and other exterior elements that may affect structural integrity, windows, window frames and doors and/or any fault, defect or condition that might affect the structural integrity or the water-tightness of the building.

c. An estimated cost of repair for those item(s) identified in the structural report as damaged or decayed and which affect the structural integrity of the structure.

d. A valuation from a qualified historic properties real estate appraiser of the building(s) proposed to be demolished.

2. For purposes of subsection C.1., the following definitions shall apply:

a. "Qualified historic restoration consultant" is defined as a professionally licensed architect or general contractor with a specialty in historic buildings, i.e., one who has worked directly on the rehabilitation or restoration of historic buildings for a minimum of ten years and/or a minimum of 15 long-term (lasting six months or more) historic building projects. The consultant shall

provide a list of qualifying historic projects, detailing their scope, budget, the consultant's scope of involvement, specific historic issues/challenges, date of completion, and client contact information. The MHZC will determine whether the consultant meets these criteria.

b. "Qualified historic properties real estate appraiser" is defined as an individual who has a minimum of five years of professional experience working as a real estate appraiser, specifically including the valuation of historic property, buildings, and their appurtenances. For these purposes, "historic" shall be defined as one hundred years old and older. The appraiser shall provide a listing of historic properties evaluated, with accompanying date of service and client contact information. The MHZC will determine whether the consultant meets these established criteria.

3. Upon receipt of the demolition permit application, the metropolitan historic zoning commission shall, at a scheduled public hearing, make the determination as to whether or not the structure meets the criteria of T.C.A. § 7-51-1201. If the historic zoning commission determines that the structure at issue meets the criteria of T.C.A. § 7-51-1201, it shall initiate legislation to allow the metropolitan council the opportunity to approve or disapprove the demolition in accordance with T.C.A. § 7-51-1201 et seq. (Ord. BL2025-742 § 3, 2025; Amdt. 1 to Ord. BL2021-842 § 2, 2021; Ord. BL2021-842 § 2, 2021)

16.28.200 Permit denial conditions.

If the application for a permit under this chapter and the drawings filed therewith describe work which does not conform to the requirements of this chapter or other pertinent laws or ordinances, the director of codes administration shall not issue a permit, but shall return the drawings to the applicant with his refusal to issue such permit. Such refusal shall, when requested, be in writing and shall contain the reasons therefor. (Prior code § 11-1-48)

16.28.210 Work authorized—Plumbing and electrical permit requirements applicable.

A. A general building permit shall carry with it the right to install in any new building or structure or part thereof any heating system, air conditioning or ventilating system or unit, storm drains not connected to a public sanitary sewer system, elevators, sidewalk elevators, vaults, chutes, coal holes, lifts, cranes, derricks, steam power boilers, steam, oil, gas or vapor engines or similar equipment or devices, and the right to treat any building or structure for termites or termite protection, provided such equipment, devices or treatments are incorporated into the plans and set forth in the specifications submitted with the application for a building permit. Where such equipment and devices or treatments are not incorporated into the plans and specifications submitted with the application for a building permit, a separate building permit shall be required. Where structural damage caused by termites is required to be replaced, the building permit fees as set forth in Section 16.28.110 shall be paid.

B. The issuance of a building permit shall not be construed as waiving the requirement for a plumbing or electrical permit for the installation of any plumbing or electrical system, device or equipment necessary or required for proper operation of such installations. (Prior code § 11-1-51)

16.28.220 Nontransferability.

Permits issued under this chapter are not transferable from one contractor, one job, site or location to another, and any refunds shall be made in accordance with Section 16.28.140. This section shall not prohibit the correction or change of addresses or location made through error on the application. (Ord. 98-1445 § 80, 1998)

16.28.230 Approved permits and construction hours signs—Posted at premises.

A. Work requiring a building permit shall not be commenced until the permit holder or his agent shall have posted the building permit card in a conspicuous place on the front of the premises. The permit shall be protected from the weather and in such position as to permit the director of codes administration to conveniently make the required entries thereon. This permit card shall be maintained in such position by the permit holder until the certificate of occupancy required by this chapter has been issued by the director.

B. A project information sign shall be posted at all project sites, excluding public infrastructure projects, in English and Spanish, for all projects requiring a building permit or a grading permit issued pursuant to Chapter 15.64. The sign shall include a phone number for the project applicant, as well as a phone number to file complaints with the Metropolitan Codes Department. One double-sided 24" (vertical) × 36" (horizontal) sign shall be posted for every fifty feet of site frontage, with no more than three signs required per street frontage containing the appropriate set of information:

1. For project sites located within or adjacent to a residential zone district, excluding permits obtained by the homeowner/resident working on his or her own residence the sign must state "No work is allowed to be performed on this site between the hours of 12:00

midnight Saturday and 12:00 midnight Sunday" and must also contain information about the acceptable noise level at a construction site pursuant to Section 9.30.010.

2. For all other project sites, excluding permits obtained by the homeowner/resident working on his or her own residence: "No work is allowed to be performed on this site between the hours of 12:00 midnight Saturday and 12:00 midnight Sunday." (Ord. BL2021-1050 § 1, 2022; Ord. BL2020-236 § 2, 2020; Ord. BL2017-835 § 1, 2017; prior code § 11-1-49)

16.28.235 Posting of information sign for major projects required.

A. For purposes of this section, "major project" means a project meeting one of the following criteria:

1. New construction or demolition of a building more than three stories in height;

2. New construction or demolition of a building with an average roof height more than forty feet above grade, excluding rood access structures or parapets;

3. New construction or demolition of a building covering ten thousand square feet or more of lot area, regardless of height; or

4. Any alteration to a building façade or any demolition activity that impacts the exterior of the building and is performed at a level above the third story or more than forty feet above grade, whichever is less.

B. Upon the issuance of a building or demolition permit for a major project, signs shall be posted at the construction or demolition site(s) in accordance with this section.

C. A project information sign shall be posted at all major project sites containing the following information:

1. A rendering or elevation drawing of the building exterior that does not contain logos or commercially recognizable symbols, provided that a rendering or elevation drawing is not required for demolition projects;

2. A title line stating "Work in Progress" and specifying the intended type(s) of occupancy classification(s);

3. Anticipated project completion date;

4. The name or company name, physical address, and telephone number of the owner of the property;

5. Website and telephone number of the project developer or development company, if applicable; and

6. The company name and telephone number of the general contractor, or for a demolition site, the demolition contractor.

D. Speed limit traffic signs shall be posted along all public streets and roadways within one hundred linear feet of any major project site so as to be visible to approaching motor vehicle occupants. The signs shall post a speed limit of fifteen mph.

E. The project information signs required by this section shall comply with the latest edition of the Manual for Uniform Traffic Control Devices (MUTCD).

F. The project information sign and motor vehicle speed limit signs must be in place at least twenty-four hours prior to commencement of any construction or demolition activity, and shall remain visible at the site until all work is completed. (Amdt. 1 to Ord. BL2016-223 § 3, 2016; Ord. BL2016-223 § 3, 2016; Ord. BL2015-1016 § 1, 2015)

16.28.240 Interpretation—Expiration—Extensions.

A. A permit issued pursuant to this chapter shall be construed to be a license to proceed with the work and shall not be construed as authority to violate, cancel, alter or set aside any of the provisions of this chapter, nor shall such issuance of a permit prevent the director from thereafter requiring a correction of errors in plans or in construction or of violations of this chapter.

B. Any permit issued shall become invalid unless the work authorized by it shall have been commenced within six months after its issuance, or if the work authorized by such permit is suspended or abandoned for a period of one-hundred eighty days after the time the work is commenced. In no case shall a permit be valid for more than two years after its issuance; provided that for cause, if the work authorized by it is sufficiently under way and is being diligently pursued, one or more extensions of time, for periods not exceeding ninety days each, may be allowed in writing by the director.

C. In the case of a permit issued to demolish a building or structure, such demolition permit shall become invalid unless the work authorized by it shall have been commenced within thirty days after its issuance, or unless the work so authorized shall have been completed within sixty days after work is timely commenced; provided that extensions of time may be allowed as provided in this section. Within thirty days of issuance of any demolition permit, an affidavit shall be submitted to the director certifying the date that demolition has commenced and describing the nature of the work performed to date. All demolition described in the affidavit must comply with the definition set forth in Section 17.04.060. If no such affidavit is submitted within thirty days of issuance, the demolition permit

shall be deemed invalid. (Amdt. 1 to Ord. BL2016-178 § 1, 2016; Ord. BL2016-178 § 1, 2016; Ord. BL2010-613 § 3, 2010; Ord. BL2007-1390 § 16, 2007; Ord. 95-1329 § 2 (part), 1995; prior code § 11-1-50)

16.28.250 Supervision required when.

Whenever a permit is to be issued in reliance upon an affidavit as provided in Section 16.28.080, or whenever the work to be covered by a permit involves construction under conditions which, in the opinion of the director of codes administration, are hazardous or complex, the director shall require that the architect or engineer who signed the affidavit or made the drawings or computations shall supervise such work, be responsible for its conformity with the approved drawings, and forthwith upon its completion make and file with the director a written affidavit that the work has been done in conformity with the approved plans and with the structural provisions of this chapter. In the event such architect or engineer is not available, the owner shall employ in his stead a competent person or agency whose qualifications are approved by the director. (Prior code § 11-1-52)

16.28.260 Change in contractor—Reissuance of permit—Fees.

When a change in a contractor occurs before a job is completed, the contractor who obtains the permits shall notify the codes department in writing. A new permit shall be taken out for the unfinished construction. The contractor that completes the construction shall pay a prorata permit fee based upon the unfinished construction; but in no case, less than the minimum permit fee. (Ord. 98-1445 § 81, 1998)

Chapter 16.32

INSPECTIONS

Sections:

16.32.010	**Required when—Authority of director.**
16.32.020	**Establishment of boundary lines.**
16.32.030	**Successive inspections—When conducted.**
16.32.040	**Plastering—Approval required.**
16.32.050	**Covering structural framework—Approval required.**
16.32.060	**Inspections prerequisite to further work.**

16.32.010 Required when—Authority of director.

A. Before issuing a permit required by Sections 2.80.010 through 2.80.110 and Chapters 16.04, 16.08, 16.28 and 16.36 through 16.56, the director of codes administration may examine or cause to be examined any building for which an application has been received for permit to enlarge, alter, repair, move, demolish or change the occupancy thereof. He shall inspect all buildings and structures, from time to time, during and upon completion of the work for which a permit was issued. He shall make a record of every such examination and inspection and of all violations of Sections 2.80.010 through 2.80.110 and Chapters 16.04, 16.08, 16.28 and 16.36 through 16.56.

B. When deemed necessary by the director of codes administration, he shall make an inspection of materials or assemblies at the point of manufacture or fabrication. He shall make a record of every such examination and inspection and of all violations of abovementioned sections and chapters.

C. The director of codes administration may make or cause to be made the inspections called for by Sections 2.80.010 through 2.80.110 and Chapters 16.04, 16.08, 16.28 and 16.36 through 16.56. He may accept reports of inspectors of recognized inspection services; provided, that after investigation he is satisfied as to their qualifications and reliability. No certificate called for by any provision of Sections 2.80.010 through 2.80.110 or Chapters 16.04, 16.08, 16.28 and 16.36 through 16.56 shall be based on such reports unless the same are in writing and certified by a responsible officer of such service. (Prior code § 11-1-53)

16.32.020 Establishment of boundary lines.

The director of codes administration shall inspect or cause to be inspected at various intervals all construction or work for which a permit is required, and a final inspection shall be made of every building or structure upon completion, prior to the issuance of the certificate of occupancy required by this chapter. Prior to the first inspection, the permittee shall establish the lot lines or boundary of the parcel by the placement of stakes or pins at each corner of the lot. Such markers are to remain in place during the construction. (Prior code § 11-1-54)

16.32.030 Successive inspections—When conducted.

The director of codes administration, upon notification from the permit holder or his agent, shall make the following inspections of buildings and such other inspections as may be necessary, and shall either approve that portion of the construction as completed or shall notify the permit holder or his agent wherein the same fails to comply with the law:

A. Foundation Inspection. The foundation inspection is to be made after trenches are excavated and forms erected.

B. Frame Inspection. The frame inspection is to be made after the roof, all framing, fire-blocking, bracing and insulation is in place and all pipes, chimneys and vents are complete.

C. Final Inspection. The final inspection is to be made after the building is completed and ready for occupancy.

D. Mechanical Rough-In Inspection. The mechanical rough-in inspection is to be made after mechanical equipment and ductwork is in place but before being concealed by walls and/or ceilings.

E. Mechanical Final Inspection. The mechanical final inspection is to be made after the mechanical construction is completed and the building is ready for occupancy. (Prior code § 11-1-55)

16.32.040 Plastering—Approval required.

In all buildings where plaster is used for fire protection purposes, the permit holder or his agent shall notify the director of codes administration after all lathing and backing is in place. No plaster shall be applied until the approval of the director has been received. (Prior code § 11-1-58)

16.32.050 Covering structural framework—Approval required.

No reinforcing steel or structural framework of any part of any building or structure shall be covered or concealed in any manner whatsoever without first obtain-

ing the approval of the director of codes administration, the designing architect or engineer. (Prior code § 11-1-57)

16.32.060 Inspections prerequisite to further work.

No work shall be done on any part of a building or structure beyond the point indicated in each successive inspection without first obtaining the written approval of the director of codes administration. Such written approval shall be given only after an inspection shall have been made of each successive step in the construction as indicated by each of the three inspections indicated in Section 16.32.030. (Prior code § 11-1-56)

Chapter 16.33

RENTAL INSPECTIONS

Sections:

16.33.010	**Authority; intent—Remedial.**
16.33.020	**Definitions.**
16.33.030	**Director.**
16.33.040	**Residential rental inspection districts authorized.**
16.33.050	**Notice.**
16.33.060	**Owners duty to notify director.**
16.33.070	**Inspections.**
16.33.080	**Periodic inspections.**
16.33.090	**Follow-up inspections.**
16.33.100	**Exemption.**
16.33.110	**Powers of director.**
16.33.120	**No fee schedule.**
16.33.130	**Appeals.**
16.33.140	**District designation.**
16.33.150	**Powers supplemental.**
16.33.160	**Failure to comply—Penalty.**
16.33.170	**Required registration.**

16.33.010 Authority; intent—Remedial.

This chapter is enacted pursuant to Tennessee Code Annotated § 13-21-301 et seq. and is declared to be remedial to promote the health, safety, and welfare of citizens by providing for the establishment of rental inspection districts and for inspection of residential rental dwelling units that are either deteriorated or in the process of deteriorating for compliance with applicable local housing, building, plumbing, electrical, fire, health or related codes. (Ord. BL2007-1550 § 1, 2007)

16.33.020 Definitions.

[The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

(1) "Deteriorated" means any structure or vacant or unimproved lot or parcel in a predominantly built-up neighborhood:

(A) Which, because of physical condition or use, is regarded as a public nuisance at common law or has been declared a public nuisance in accordance with local housing, building, plumbing, electrical, fire, health or related codes;

(B) Which, because of physical condition, use or occupancy is considered an attractive nuisance;

(C) Which, because it is dilapidated, unsanitary, unsafe, vermin-infested or other condition, has been designated by the appropriate agency or department of the municipality as unfit for human habitation or use;

(D) Which is a fire hazard, or is otherwise dangerous to the safety of persons or property;

(E) From which the utilities, plumbing, heating, sewerage or other facilities have been disconnected, destroyed, removed, or rendered ineffective so that the property is unfit for human habitation or use;

(F) Which, by reason of neglect or lack of maintenance, has become a place for accumulation of trash and debris, or a haven for rodents or other vermin;

(G) Which has been tax delinquent for a period of at least three years; or

(H) Which has not been rehabilitated within the time constraints placed upon the owner or party in interest by the director.

(2) "Director" means the director of the department of codes administration, or such other officers and employees of the department of codes administration as may be charged with the administration of this chapter, or the director's duly authorized representative.

(3) "Dwelling" means any building or structure, or part thereof, used and occupied for human occupation or use or intended to be so used, and includes any outhouses and appurtenances belonging thereto or usually enjoyed therewith.

(4) "Dwelling unit" means a building or structure or part thereof that is used for a home or residence by one or more persons who maintain a household.

(5) "Municipality" means the Metropolitan Government of Nashville and Davidson County.

(6) "Owner" means the holder of the title to real property and every mortgagee of record.

(7) "Parties in interest" means all individuals, associations, corporations and others who have interests of record in a structure and any who are in possession thereof.

(8) "Residential rental dwelling unit" means a dwelling unit that is leased or rented to one or more tenants. However, a dwelling unit occupied in part by the owner thereof shall not be construed to be a residential rental dwelling unit unless otherwise provided by zoning ordinance.

(9) "Structure" means any dwelling or place of public accommodation or vacant building or structure suitable as a dwelling or place of public accommodation. (Ord. BL2007-1550 § 2, 2007)

16.33.030 Director.

The department of codes administration, acting through its director, shall perform the duties authorized by this

chapter. (Ord. BL2007-1550 § 3, 2007)

16.33.040 Residential rental inspection districts authorized.

(1) Pursuant to Tennessee Code Annotated § 13-21-302, the director is authorized to inspect residential rental dwelling units that are either deteriorated or in the process of deteriorating for compliance with applicable housing, building, plumbing, electrical, fire, health or related codes. The residential rental dwelling units shall be located in a residential rental inspection district. Residential rental inspection districts shall be established by ordinance based upon a finding that:

(A) There is a need to protect the public health, safety and welfare of the occupants of dwelling units inside the designated residential rental inspection district;

(B) The residential rental dwelling units within the designated residential rental inspection district are either deteriorated or in the process of deteriorating or the residential rental dwelling units are in the need of inspection by the municipality to prevent deterioration, taking into account the number, age and condition of residential dwelling rental units inside the proposed residential rental inspection district; and

(C) The inspection of residential rental dwelling units inside the residential rental inspection district is necessary to maintain the health, safety and welfare of tenants and other residents living in the proposed residential rental inspection district. Nothing in this section shall be construed to authorize a municipality-wide residential rental inspection district and the boundaries of the residential rental inspection district shall be limited to such areas that meet the criteria set forth in this section.

(2) No residential rental inspection district shall be established until and unless the location and extent thereof shall have been submitted to the planning commission in accordance with Metropolitan Charter section 11.505.

(3) Any residential rental inspection district established pursuant to the authority of this chapter shall exist for a period not to exceed ten years from the date of adoption of the ordinance creating such residential rental inspection district. Nothing contained herein shall preclude the re-establishment of any residential rental inspection district by ordinance as authorized by this chapter.

(4) Any residential rental inspection district established pursuant to this chapter shall be subject to removal from its designation as a rental inspection district by vote of the metropolitan council upon adoption of an ordinance amending section 16.33.140 of this chapter. (Ord. BL2007-1550 § 4, 2007)

16.33.050 Notice.

The director shall make reasonable efforts to notify owners and parties in interest of residential rental dwelling units in the designated residential rental inspection district regarding the adoption of the residential rental inspection ordinance. The director shall provide a summary of the provisions of the residential rental inspection ordinance to owners and parties in interest of residential rental dwelling units in the designated residential rental inspection district. (Ord. BL2007-1550 § 5, 2007)

16.33.060 Owners duty to notify director.

Owners and parties in interest of dwelling units in a residential rental inspection district shall notify the director in writing if the dwelling unit is used for residential rental purposes. The director may develop a form for such purposes. There shall be no registration fee or a fee of any kind associated with the written notification. The director shall not require that the written notification from the owner or party in interest of a dwelling unit subject to this chapter be provided to the director in less than 60 days after the adoption of an ordinance establishing a residential rental inspection district. However, there shall be no penalty for the failure of an owner or party in interest of a residential rental dwelling unit to comply with the provisions of this section, unless and until the director provides actual or written notice to the property owner or party in interest. Notice sent by regular first class mail to the last known address of the owner or party in interest shall be deemed compliance with this section. (Ord. BL2007-1550 § 6, 2007)

16.33.070 Inspections.

Upon establishment of a residential rental inspection district in accordance with this part, the director may, in conjunction with the written notifications as provided for in this part, proceed to inspect dwelling units that are either deteriorated or in the process of deteriorating located in the designated residential rental inspection district. The director is authorized to inspect residential rental dwelling units that are either deteriorated or in the process of deteriorating to determine if the dwelling units are being used as a residential rental property and to determine if the dwelling units are in compliance with applicable housing, building, plumbing, electrical, fire, health or related codes. (Ord. BL2007-1550 § 7, 2007)

16.33.080 Periodic inspections.

Except as provided in section 16.33.090, following the initial inspection of a residential rental dwelling unit found to be deteriorated or in the process of deteriorat-

ing, the director may inspect periodically any residential rental dwelling unit that is deteriorated or in the process of deteriorating that is not otherwise exempted by this chapter. (Ord. BL2007-1550 § 8, 2007)

16.33.090 Follow-up inspections.

Following the initial or periodic inspection of a residential rental dwelling unit found to be deteriorated or in the process of deteriorating and which is subject to this chapter, the director has the authority to require the owner or party in interest of such dwelling unit to submit to such follow-up inspections of the dwelling unit as the director deems necessary, until such time as the dwelling unit is brought into compliance with the provisions of all applicable housing, building, plumbing, electrical, fire, health or related codes. (Ord. BL2007-1550 § 9, 2007)

16.33.100 Exemption.

Following the initial or periodic inspection of a residential rental dwelling unit found to be deteriorated or in the process of deteriorating, and provided that there are no violations of applicable codes and ordinances, or such violations are remedied in a timely manner, the director shall provide to the owner or party in interest of such residential rental dwelling unit an exemption from this chapter for a minimum of four years. For the purposes of this section, timely manner shall be construed to mean less than 90 days after the owner has been given notice of violation. If a residential rental dwelling unit has been issued a certificate of occupancy within the last four years, an exemption shall be granted for a minimum period of four years from the date of the issuance of the certificate of occupancy. If the residential rental dwelling unit becomes in violation of housing, building, plumbing, electrical, fire, health or related codes during the exemption period, the director may revoke the exemption granted by this section. (Ord. BL2007-1550 § 10, 2007)

16.33.110 Powers of director.

The director is authorized to exercise such powers as may be necessary or convenient to carry out and effectuate the purposes and provisions of this chapter, including the following powers to:

(1) Investigate conditions in the municipality in order to determine which residential rental dwelling units therein are deteriorated or in the process of deteriorating;

(2) Administer oaths, affirmations, examine witnesses, issue subpoenas and receive evidence;

(3) Enter upon the premises for the purpose of making examinations and inspections; provided, the director may enter inside the dwelling unit only with the consent of the persons in possession, or with a validly issued search warrant, or in the event of an emergency presenting an immediate threat to the health, safety, and welfare of the persons in possession. Such entry shall comply in all respects with Amendment 4 to the Constitution of the United States as well as Article I, Section 7, of the Constitution of Tennessee. Such entry shall be made in such manner as to cause the least possible inconvenience to the persons in possession;

(4) Appoint and fix the duties of such officers, agents and employees as the director deems necessary to carry out the purposes of this chapter; and

(5) Delegate any of such director's functions and powers under this chapter to such officers and agents as the director may designate. (Ord. BL2007-1550 § 11, 2007)

16.33.120 No fee schedule.

No fee schedule shall be established to administer the provisions of this chapter.

In addition, no fee shall be charged to an owner or party in interest for an inspection of a dwelling unit subject to this chapter who has submitted a written notification to the director as to the identity of such unit owner or party in interest as provided in [section] 16.33.060, nor shall a fee be charged for a subsequent inspection of a residential dwelling unit that has received an exemption from the residential inspection ordinance for a minimum of four years pursuant to [section] 16.33.100. (Ord. BL2007-1550 § 12, 2007)

16.33.130 Appeals.

An owner or party in interest may appeal any order of the director issued pursuant to this chapter to the board of property standards and appeals. The owner or party in interest may request and shall be granted a hearing before the board, provided, that such person shall file in the office of the director a written petition completed pursuant to the rules, regulations and requirements of the board, within twenty days after the date on which the order was served upon the owner or party in interest. (Ord. BL2007-1550 § 13, 2007)

16.33.140 District designation.

The following areas meet the criteria set out in Tennessee Code Annotated § 13-21-302(a)(2) and section 16.33.040 of this chapter and are hereby designated as the geographic areas known as rental inspection districts:

a. Urbandale - Nations.
b. Sylvan Heights.
c Hadley Washington - Meharry.
d. North Nashville - Buena Vista - Metrocenter.

e. Napier - Trimble - Wedgewood/Houston.
f. Airport - Murfreesboro Pike.
g. Edgefield - Shelby Hills.
h. Cleveland Park - McFerrin Park.
g. Greenwood - Eastwood.
h. Vanderbilt - 21st.
i. Hermitage.
j. South Madison.
k. Madison Park.
l. Edenwold.
m. Holder Drive.
n. Tusculum Road.

The rental inspection districts as designated are illustrated by the rental inspection districts summary map prepared by the metropolitan planning department which is hereby incorporated into this section by reference and filed with the metropolitan clerk.

The director shall have the authority to schedule a phased implementation of this ordinance over a three year period for the rental inspection districts described above. (Ord. BL2016-125 § 1, 2016; Ord. BL2007-1550 § 14, 2007)

16.33.150 Powers supplemental.

Nothing in this chapter shall be construed to abrogate or impair the powers of the courts or of any department of the metropolitan government to enforce any provisions of its charter or its ordinances or regulations, nor to prevent or punish violations thereof, and the powers conferred by this chapter shall be in addition and supplemental to the powers conferred by any other law. (Ord. BL2007-1550 § 15, 2007)

16.33.160 Failure to comply—Penalty.

An owner or party in interest, upon willful failure or refusal to comply with the notice requirements authorized by this chapter, shall be subject to a penalty of fifty dollars per day for each day of violation. (Ord. BL2007-1550 § 16, 2007)

16.33.170 Required registration.

a. It shall be the duty of all landlords of one or more dwelling units to register with the department of codes administration on forms provided by the director of codes administration, through the permit application portal, or through whichever means are provided to the public for such purpose. Information required upon registration shall include the following: the landlord or landlord's agent's name, telephone number, and physical address, which physical address may not be a post office box, as well as the street address and unit number, as appropriate, for each dwelling unit that the landlord owns, leases, or subleases, or has the right to own, lease, or sublease. A fee of ten dollars may be collected upon registration and charged annually upon renewal of registration to cover the administration of this section.

b. If information required under subdivision (a) changes, landlords or their agents are required to update the information with the department of codes administration within thirty days of a change. Whenever there is a sale or change in ownership of a dwelling unit, the original landlord or the landlord's agent is required to update ownership information within thirty days of a change in ownership.

c. If a landlord fails to register or fails to notify the department of codes administration of a change of ownership within thirty days of the change, a fine of fifty dollars per week may be assessed until the landlord comes into compliance with this section.

d. Prior to the assessment of any fine under subsection (c), the department of codes administration shall give the landlord the opportunity to appear at a hearing concerning the landlord's failure to register or timely send notification of a change of ownership. The department of codes administration shall send by certified mail written notice containing the date, time, and place of the scheduled hearing to the landlord at least fifteen days prior to the hearing date. (Ord. BL2023-1839 § 1, 2023)

Chapter 16.36

CERTIFICATES OF OCCUPANCY

Sections:

16.36.010	**Prerequisite for occupancy.**
16.36.020	**Issuance—Contents.**
16.36.030	**Temporary certificates.**
16.36.040	**Existing buildings—Examination and inspection.**
16.36.050	**Green permits for sustainable design.**

16.36.010 Prerequisite for occupancy.

No new building shall be occupied and no change in occupancy of a building or part of a building shall be made until after the department of codes administration shall have issued a certificate of occupancy therefor. (Prior code § 11-1-59)

16.36.020 Issuance—Contents.

A. Upon completion of a building erected in accordance with approved plans, and after the final inspection and upon application therefor, the department of codes administration shall issue a certificate of occupancy stating the nature of the occupancy permitted, the number of persons for each floor when limited by law and the allowable load per square foot for each floor in accordance with the provisions of Sections 2.80.010 through 2.80.110 and Chapters 16.04, 16.08, 16.28 and 16.36 through 16.56.

B. The metropolitan department of codes administration shall have three days from the time they are notified to inspect a building or dwelling for a use and occupancy permit. If a violation is found, the permit shall be withheld. If the inspection is not made within three working days, the permit shall be deemed to be granted and the permit shall be issued by the department. (Prior code § 11-1-60)

16.36.030 Temporary certificates.

A temporary certificate of occupancy may be issued for a portion or portions of a building which may safely be occupied prior to final completion of the building. (Prior code § 11-1-61)

16.36.040 Existing buildings—Examination and inspection.

A certificate of occupancy for any existing building shall be obtained by applying to the department of codes administration and supplying the information and data necessary to determine compliance with Sections 2.80.010 through 2.80.110 and Chapters 16.04, 16.08, 16.28 and 16.36 through 16.56 for the occupancy intended. Where necessary, in the opinion of the director, two sets of detailed drawings or a general inspection or both may be required. When, upon examination and inspection, it is found that the building conforms to the provisions of this chapter for such occupancy, a certificate of occupancy shall be issued. (Prior code § 11-1-62)

16.36.050 Green permits for sustainable design.

A. In addition to the certificate for occupancy required pursuant to this chapter, the department of codes administration shall issue a "green permit" to any building meeting the sustainable design protocol as provided in this section.

B. Developers seeking to obtain a green permit shall notify the department of codes administration of their intent in writing and provide proof of green building permit registration at the time they apply for a building permit pursuant to Chapter 16.28 of the metropolitan code.

C. Upon completion of the building, the department of codes administration shall issue a green certificate of occupancy provided the following conditions have been satisfied:

1. For a residential development, the applicant shall provide proof of certification from one of the following sustainable design protocols:

a. The U.S. Green Building Council's LEED certification program

b. The "EarthCraft House" green building program.

2. For a commercial development, the applicant shall provide proof of certification from the U.S. Green Building Council's LEED certification program, and shall provide proof of compliance with the U.S. Green Building Council's water conservation qualifier, requiring that the building reduce potable water consumption by twenty percent.

D. In the event a temporary use and occupancy permit is issued pending completion of the green building certification for the project, and such green building certification is not obtained within one year from the date the temporary use and occupancy permit is issued, the department of codes administration shall issue a permanent use and occupancy permit provided the requirements of Section 16.36.020 are satisfied. Once the project finally obtains its green building certification, the department of codes administration shall issue a green certificate of occupancy, as well.

E. The department of codes administration is authorized to develop and implement additional green building certification programs subject to approval of the council

by resolution receiving twenty-one affirmative votes. (Amdts. 1, 2 to Ord. BL2008-217 § 1, 2008; Ord. BL2008-217 § 1, 2008)

Chapter 16.40

FLOOR LOADS

Sections:

16.40.010 **Occupancies exceeding safe capacity prohibited.**

16.40.020 **Computation of safe loads—Responsibility of owner.**

16.40.030 **Posting safe loads in certain buildings.**

16.40.040 **Exceeding posted capacity prohibited.**

16.40.010 Occupancies exceeding safe capacity prohibited.

No existing or new building shall be occupied for any purpose which will cause the floors thereof to be loaded beyond their safe capacity. The director of codes administration may permit occupancy of a building for mercantile, commercial or industrial purposes, by a specific business, when he is satisfied that such capacity will not thereby be exceeded. (Prior code § 11-1-63)

16.40.020 Computation of safe loads—Responsibility of owner.

It shall be the responsibility of the owner, agent, proprietor or occupant of Groups S and F occupancies or any occupancy where excessive floor loading is likely to occur to employ a competent architect or engineer in computing the safe load capacity. All such computations shall be accompanied by an affidavit from the architect or engineer stating the safe allowable floor load on each floor in pounds per square foot uniformly distributed. It shall thereupon be filed as a permanent record of the department of codes administration. (Prior code § 11-1-64)

16.40.030 Posting safe loads in certain buildings.

In every building or part of a building used for business storage, industrial or hazardous purposes, the safe floor loads, as approved by the director of codes administration, shall be marked on plates of approved design which shall be supplied and securely affixed by the owner of the building in a conspicuous place in each story to which they relate. Such plates shall not be removed or defaced, and if lost, removed or defaced, shall be replaced by the owner of the building. (Prior code § 11-1-65)

16.40.040 Exceeding posted capacity prohibited.

No owner shall place, or permit to be placed, on any floor of a building, a greater load than the safe load so determined and posted as provided in this chapter. (Prior code § 11-1-66)

Chapter 16.44

NOISE CONTROL*

Sections:

16.44.010 Construction noise.

16.44.010 Construction noise.

Construction noise is governed by the provisions of Chapter 9.30 of this Code. (Amdt. 1 to Ord. BL2019-1631 § 4, 2019; Ord. BL2019-1631 § 4, 2019)

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*__Editor's note—__Ord. BL2019-1631, § 1, adopted August 20, 2019, repealed the former Ch. 16.44, §§ 16.44.010—16.44.060, which pertained to similar subject matter and derived from prior Code §§ 11-1-17.8—11-1-17.10. Section 4 of said ordinance enacted a new Ch. 16.44 as set out herein.

Chapter 16.48

PRESERVATION OF EXISTING BUILDINGS

Sections:

16.48.010	**Variances authorized when—Guidelines.**
16.48.020	**Exemptions for historic buildings.**

16.48.010 Variances authorized when—Guidelines.

A. To promote conservation and rehabilitation of existing buildings, alterations, repairs, or change of use and occupancy may be made where such rehabilitation conforms to intent of this code as established by the director. The director may exercise discretionary authority, subject to appeal, to vary or modify in whole or in part the application of any provision of this code where compliance with such provision would create practical difficulty or undue hardship, and further subject to Sections 3405, D102.1, and D102.2 of the Standard Building Code.

B. Such variance or modification shall be consistent with the intent of this code, which is to achieve acceptable levels of safety for the general public. The director may require documented justification for any request for such variances or modifications from any code provision to be prepared in written form, supported by technical or other data deemed necessary and that proposal shall become a part of the permanent records of the department of codes administration.

C. The director may adopt a committee to develop such rules, regulations and guidelines such as, but not limited to, "Chapter 34, Section 3409 Compliance Alternatives, of the Standard Building Code" as may be necessary to carry out the intent of this chapter, which is to allow discretion and flexibility in the rehabilitation of existing buildings.

D. The director shall create a rehab committee that shall meet on as needed basis. The members of committee shall be the assistant director of the codes department, the chief plans examiner or the chief building inspector and the assistant fire marshal or his designated deputy. The decision of the rehab committee may be subject to Chapter 2.80 (the board of fire and building appeals). (Ord. BL2002-1142 § 28, 2002; Ord. 95-1487 § 85, 1995; prior code § 11-1-76)

16.48.020 Exemptions for historic buildings.

The provisions of this code relating to the construction, alteration, repair, enlargement, restoration, relocation or moving of buildings or structures shall not be mandatory for existing buildings or structures identified and classified by the state or local jurisdiction as historic buildings, or those built prior to 1933, when such buildings or structures are judged by the director to be safe and in the public interest of health, safety and welfare regarding any proposed alteration, repair, enlargement, restoration, relocation or moving within the fire district. The application must submit complete architectural and engineering plans and specifications bearing the seal of a registered professional engineer or architect. (Prior code § 11-1-77)

Chapter 16.52

UNSAFE BUILDINGS

Sections:

16.52.010—16.52.060 Reserved.

16.52.070 Notice to vacate.

16.52.010—16.52.060 Reserved.

16.52.070 Notice to vacate.

Whenever an occupied building or structure has been condemned or ordered demolished or repaired by the director of codes administration, he shall notify the tenants of such action in writing, and order such tenants to vacate the premises within a specified time, if necessary, or to do and perform such acts or works as may be necessary to fulfill the orders set forth in such notice. It is unlawful for any tenant to fail or refuse to promptly comply with any such notice or order. (Prior code § 11-1-72)

Chapter 16.56

FLOOD CONTROL REQUIREMENTS

Sections:

16.56.010	**Building permit applications—Review conditions.**
16.56.020	**Subdivision proposals—Review conditions.**
16.56.030	**Water supply and sanitary sewage systems.**

16.56.010 Building permit applications—Review conditions.

The director of codes administration shall review all building permit applications for new construction or substantial improvements to determine whether proposed building sites will be reasonably safe from flooding. If a proposed building site is in a location that has a flood hazard, any proposed new construction or substantial improvement, including prefabricated and mobile homes, must:

A. Be designed (or modified) and anchored to prevent flotation, collapse, or lateral movement of the structure;

B. Use construction materials and utility equipment that are resistant to flood damage; and

C. Use construction methods and practices that will minimize flood damage. (Prior code § 11-1-87)

16.56.020 Subdivision proposals—Review conditions.

The metropolitan planning commission shall review subdivision proposals and other proposed new developments to assure that all such proposals are consistent with the need to minimize flood damage, and all public water utilities and facilities, such as sewer, gas, electrical, and water systems are located, elevated and constructed to minimize flood damage. (Prior code § 11-1-88)

16.56.030 Water supply and sanitary sewage systems.

The director of water and sewerage services shall require new or replacement water supply systems and/or sanitary systems to be designed to minimize or eliminate infiltration of floodwaters into the systems and discharges from the systems into floodwaters, and require on-site disposal systems to be located so as to avoid impairment of them or contamination from them during flooding. (Prior code § 11-1-89)

Chapter 16.60

SUSTAINABLE DEVELOPMENT DESIGN STANDARDS

Sections:

16.60.010	**Policy.**
16.60.020	**Purpose.**
16.60.030	**Organizations affected.**
16.60.040	**Definitions.**
16.60.050	**Policy and goals.**
16.60.060	**Procedures and responsibilities.**
16.60.070	**Budgeting and financing.**
16.60.080	**Training.**
16.60.090	**Implementation.**
16.60.100	**Exemptions.**
16.60.110	**Continued monitoring.**

16.60.010 Policy.

1. The metropolitan government shall integrate green and/or sustainable building principles and practices into the design, construction, and operations of all metropolitan government facilities, and metropolitan government-funded projects to the extent described in section 16.60.050, at a minimum. Furthermore, the metropolitan government shall provide leadership and guidance to encourage the application of green building practices in private sector development. This policy is intended to yield long-term cost savings to the government's taxpayers by implementing substantial improvements in life-cycle performance and reduced life-cycle costs.

2. In addition, in considering purchases of land for future development, the metropolitan government shall evaluate its ability to develop the property in ways that enhance sustainability and reduce potential negative environmental impacts from development.

3. The LEEDTM Green Building Rating Systems in effect at the time of enactment of this chapter are hereby adopted as the standard for sustainable building principles and practices of the metropolitan government. (Ord. BL2007-1374 § 1, 2007)

16.60.020 Purpose.

The purpose of the metropolitan government's policy on sustainable building is to require the government's commitment to environmental, economic, and social stewardship, to yield cost savings to the metropolitan government taxpayers through reduced operating costs, to provide healthy and productive work environments for staff and visitors, and to contribute to the government's goals of protecting, conserving, and enhancing the region's environmental resources. Additionally, the metropolitan government shall help to set a community standard of sustainable building. (Ord. BL2007-1374 § 1, 2007)

16.60.030 Organizations affected.

The provisions of this chapter shall be applicable to all metropolitan government departments, agencies, boards and commissions and their contractors responsible for planning, designing, developing, constructing and managing metropolitan government-owned facilities and buildings. (Amdt. 1 to Ord. BL2007-1374 § 1, 2007; Ord. BL2007-1374 § 1, 2007)

16.60.040 Definitions.

[The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

"Addition" means new construction projects that expand the square footage of occupied area of an existing building by adjoining structures, adding stories, or renovating previously unoccupied or unconditioned space.

"Building and facility" means any metropolitan government owned or leased structure that encloses a space used for sheltering any occupancy.

"Green and/or sustainable building principles and practices" means those principles and practices consistent with the LEEDTM Green Building Rating Systems.

"LEEDTM" is an acronym for Leadership in Energy and Environmental Design. The LEEDTM rating system is a voluntary, consensus-based green building rating system developed by the U.S. Green Building Council (USGBC). It is based on existing, proven technology and evaluates environmental performance from a "whole building" perspective. LEEDTM is a third party verified system designed for rating new and existing commercial, institutional, and multi-family residential buildings. It contains prerequisites and credits in six categories: Sustainable site planning, improving energy efficiency, conserving materials and resources, embracing indoor environmental quality, safeguarding water, and innovation in design. There are four rating levels: Certified, Silver, Gold, and Platinum.

"LEEDTM Project Scorecard" is a checklist for identifying a project potential for sustainable design opportunities early in the design.

"LEEDTM Reference Guide" means the supporting document to the LEEDTM Green Building Rating System. The guide is intended to assist project teams in understanding LEEDTM criteria and the benefits of complying with each credit. The guide includes examples of strategies that can be used in each category, case studies of

buildings that have implemented these strategies successfully, and additional resources that will provide more information.

"Life cycle cost analysis" means an inclusive approach to costing a facility or group of facilities that encompasses planning, design, construction, operation and maintenance over the useful life of the facilities and finally any decommissioning or disassembly costs. Life cycle cost analysis looks at the net present value of design options as investments. The goal is to achieve the highest, most cost-effective environmental performance possible over the life of the project.

"Metropolitan Government Sustainable Development Design Guidelines" means the LEEDTM Green Building Rating Systems adopted by the metropolitan government pursuant to section 16.60.010 of this chapter.

"Sustainable building" means the integration of building materials and methods that promote environmental quality, economic vitality, and social benefit through the design, construction and operation of the built environment. Sustainable building merges sound, environmentally responsible practices into one discipline that looks at the environmental, economic and social effects of a building or built project as a whole. Sustainable design encompasses the following broad topics: efficient management of energy and water resources, management of material resources and waste, protection of environmental quality, protection of occupant health and indoor environmental quality, reinforcement of natural systems, and integrating the design approach. (Ord. BL2007-1374 § 1, 2007)

16.60.050 Policy and goals.

1. It is the policy of the metropolitan government to finance, plan, design, construct, manage, maintain, and decommission its facilities and buildings to be sustainable. This chapter shall apply to new construction and additions, for which the planning and construction commences on or after January 1, 2020. For new construction, this chapter shall apply to projects which exceed five thousand gross square feet of occupied space or for which the total project cost exceeds two million dollars. For additions to existing buildings or facilities, this chapter shall only apply to projects that add five thousand or more gross square feet of occupied space, LEEDTM certification requirements shall only apply to the scope of the addition itself.

2. The LEEDTM rating system and reference guide, as enacted and established as of the effective date of this ordinance, shall be used as a guide for design and a measuring tool to determine what constitutes sustainable building by national standards.

3. Project teams are required to pursue LEEDTM certification through the U.S. Green Building Council and develop a strategy to achieve LEEDTM Silver level rating of the most applicable LEEDTM rating system for buildings outside of the Urban Services District (USD) and LEEDTM Gold level rating of the most applicable LEEDTM rating system for buildings within the USD. (Amdt. 1 to Ord. BL2019-1599 § 2, 2019; Ord. BL2019-1599 § 2, 2019; Ord. BL2007-1374 § 1, 2007)

16.60.060 Procedures and responsibilities.

1. The metropolitan government departments, agencies, boards or commissions undertaking a construction project subject to the provisions of this chapter and the department of codes administration are responsible for ensuring that facilities and buildings comply with section 16.60.050.

2. The department of codes administration is further responsible for coordinating with metropolitan government departments any educational and technical resources available that support and promote sustainable design and construction of metropolitan government facilities.

3. Project managers for projects pursuing LEEDTM certification are required to submit proof of LEEDTM registration and a LEEDTM scorecard indicating all points which a project intends to pursue to the department of codes administration at the time an application for the building permit is filed. Without submission of the aforementioned LEEDTM proof of registration and scorecard, the director of the department of codes administration shall hold the building permit application until said documents are provided evidencing that the project is pursuing LEEDTM Silver or Gold certification. (Amdt. 1 to Ord. BL2019-1599 § 2, 2019; Ord. BL2019-1599 § 2, 2019; Ord. BL2007-1374 § 1, 2007)

16.60.070 Budgeting and financing.

All capital construction which falls under this policy is required to budget LEEDTM design standards in the development of a metropolitan government funded facility. Budget planning and life cycle cost analysis to achieve LEEDTM Silver or Gold rating is required. (Amdt. 1 to Ord. BL2019-1599 § 3, 2019; Ord. BL2019-1599 § 3, 2019; Ord. BL2007-1374 § 1, 2007)

16.60.080 Training.

Metropolitan government departments, agencies, boards and commissions subject to the provisions of this chapter shall coordinate the LEEDTM training for persons managing the construction of their respective projects. (Ord. BL2007-1374 § 1, 2007)

16.60.090 Implementation.

1. The sustainable development design standards shall be forwarded to the metropolitan department of codes administration for review consistent with the above referenced policy objectives.

2. The purchasing agent shall assist and review all request for proposals (RFP) and invitations to bid (ITB) documents to ensure consistency with this article. (Ord. BL2007-1374 § 1, 2007)

16.60.100 Exemptions.

1. The metropolitan government sustainable development design guidelines of achieving LEEDTM Gold status for buildings within the USD shall not apply to current metropolitan government facilities that have been approved as part of the fiscal year 2019-2020 capital spending plan for planning, land acquisition and/or construction. However, these projects shall still implement metropolitan government sustainable development design guidelines and strategies to the maximum extent possible and practicable. Design guidelines of achieving LEEDTM Silver status shall continue to apply to metropolitan government facilities outside of the USD.

2. Metropolitan government facility construction projects that are to remain predominately unoccupied or to predominately serve specialized functions are not subject to the government's sustainable development design guidelines. For purposes of this subsection, "specialized functions" include thermal transfer functions, solid and/or toxic waste disposal functions, water and wastewater treatment functions, warehouse and/or storage functions, and mechanical functions. The director of the department of codes administration shall make a determination as to whether a facility construction project is to serve a predominately specialized function using the meaning of the phrase contained in this subsection.

3. Even though projects may become exempt from the government's required sustainable development design guidelines, project teams are required to complete a LEEDTM Project Scorecard for each project as an evaluation of a projects sustainable design potential. Project teams are encouraged to apply the relevant portions of metropolitan government sustainable development design guidelines and to develop goals that increase the environmental, social, and economic benefits of the project. The department of codes administration shall retain the LEEDTM certification status of each construction project subject to the provisions of this chapter. (Amdt. 1 to Ord. BL2019-1599 § 4, 2019; Ord. BL2019-1599 § 4, 2019; Ord. BL2007-1374 § 1, 2007)

16.60.110 Continued monitoring.

A. It shall be the duty of the metropolitan government department, agency, board, or commission having control over a building or facility that was constructed or renovated using the LEED sustainable building rating system pursuant to this chapter to provide information detailing the environmental performance and operation of the building or facility for the previous calendar year. This information shall be made available to the public on metropolitan government's website no later than June 30 of each year.

B. The information required by subsection A. of this section shall include, but not be limited to, the following for each LEED facility:

1. The costs for electricity, natural gas, and water for the previous calendar year;

2. The building or facility's energy and water usage in kilowatt hours, therms, and gallons (as applicable) for the previous calendar year compared to both a non-LEED certified building/facility of similar size and use within the area of the metropolitan government and to the current Commercial Buildings Energy Consumption Survey (CBECS) Energy Use Intensity (EUI) benchmark for similar building type;

3. The estimated energy and water cost savings for the previous calendar year compared to a non-LEED certified building/facility of similar size and use within the area of the metropolitan government;

4. The square footage of both the LEED building and the non-LEED comparison building. (Ord. BL2023-72 § 1, 2023; Amdt. 1 to Ord. BL2013-381 § 1, 2013; Ord. BL2013-381 § 1, 2013)

Title 17

ZONING

Chapters:

17.04	**General Provisions and Definitions**
17.08	**Zoning Districts and Land Uses**
17.10	**Reserved**
17.12	**District Bulk Regulations**
17.16	**Land Use Development Standards**
17.20	**Parking, Loading and Access**
17.24	**Landscaping, Buffering and Tree Requirements**
17.28	**Environmental and Operational Performance Standards**
17.32	**Sign Regulations**
17.36	**Overlay Districts**
17.37	**Downtown Code (DTC)**
17.38	**Design-Based Multi-Family**
17.40	**Administration and Procedures**

Chapter 17.04

GENERAL PROVISIONS AND DEFINITIONS

Sections:

17.04.010	**Title and purpose.**
17.04.020	**Applicability.**
17.04.030	**Exceptions.**
17.04.040	**Severability.**
17.04.050	**Rules for construction of language.**
17.04.055	**Fees, in-lieu contributions and other assessments, estimates or payments.**
17.04.060	**Definitions of general terms.**

17.04.010 Title and purpose.

A. Title and Citation. The ordinance codified in this title shall be known as "the Zoning Code for Metropolitan Nashville and Davidson County," and may be cited and referred to herein as "this Zoning Code."

B. Purpose and Authority. This Zoning Code is enacted pursuant to Articles 2 and 20 of the Charter of the Metropolitan Government of Nashville and Davidson County and Title 13 of the Tennessee Code Annotated. This title is designed to implement the goals and objectives of Concept 2010: A General Plan for Nashville and Davidson County and its associated subarea and functional plans. Created by this title are a diverse range of zoning districts which establish appropriate land uses and associated standards of development needed to implement the land use policies of the General Plan. In conjunction with this title an official zoning map assigns an appropriate zoning classification to all properties to which this title is applicable. Also established by this title are special overlay districts, including a planned unit development district, which are intended to address specific aspects of land use control or design not easily accomplished by conventional zoning techniques. This title further establishes development standards which are designed to protect the value and integrity of neighboring properties, enhance the general character and appearance of the community, reinforce the central business district, and provide for a reasonable balance between efficient utilization of land, protection of this community's environmental resources and assuring the operational integrity of streets. Also established in this title are those rules and procedures deemed necessary and appropriate to administer and enforce the provisions of this title, so as to protect the public health, safety, morals, convenience, order, prosperity and general welfare of the present and future inhabitants of Metropolitan Nashville and Davidson County. (Ord. 96-555 § 1.1, 1997)

17.04.020 Applicability.

A. General. The provisions of this Zoning Code shall apply to the development of all land within the jurisdiction of the Metropolitan Government of Nashville and Davidson County, exclusive of incorporated municipalities. No development shall be undertaken without prior authorization pursuant to this Zoning Code.

B. Minimum Requirements. The requirements of this Zoning Code shall be considered as the minimum requirements for the promotion of the public health, safety and general welfare. It is not intended to interfere with or abrogate or annul any easements, covenants or other agreements between parties. Where this Zoning Code imposes a greater restriction upon property than that imposed by other resolutions, rules, regulations, easements, covenants or agreements, the provisions of this Zoning Code shall govern.

C. New Development. Upon the effective date of this Zoning Code or any subsequent amendment, any new building or other structure or any tract of land shall be used, constructed or developed only in accordance with all applicable provisions of this Zoning Code.

D. Existing Development. Any existing use, lot, building or other structure legally established prior to the effective date of this Zoning Code that does not comply with any of its provisions shall be subject to the regulations of the nonconforming provisions of this Zoning Code stipulated in Article XIV of Chapter 17.40, except as provided in the Downtown Code, Chapter 17.37. (Ord. BL2009-586 § 1(Exh. A, § 2), 2010; Ord. 96-555 § 1.2, 1997)

17.04.030 Exceptions.

A. Previously Issued Permits and Exceptions. Any variance, exception or permit authorized before the effective date of this Zoning Code may be continued, changed, extended, enlarged or structurally altered only as provided in this title.

1. Any permit issued before the effective date of this Zoning Code or subsequent amendment shall remain in effect provided that construction is begun within six months from the date of issuance of the permit. Construction shall mean physical improvements such as, but not limited to, water and sewer lines, footings, and/or foundations have been developed on the site. Clearing, grading, the storage of building materials, or the placement of temporary structures shall not constitute beginning construction.

2. Where no limitation as to duration of the use was imposed at the time of authorization the use may be continued. When the use was granted for a specific period of time, the applicable provisions of this code shall be applied upon the expiration of that time.

3. In no event shall such use be changed except to a conforming use or a nonconforming use as provided for in Section 17.40.650C. A change of use is a change to another use either under the same use group or any other use group or major class of use. A change in occupancy or ownership shall not by itself constitute a change in use.

B. Temporary Dwelling as a Result of Natural Disaster. The zoning administrator may issue a temporary permit for a mobile home as a single-family dwelling unit on any lot previously occupied by a permanent dwelling that was destroyed by natural causes and is being reconstructed. The zoning administrator may impose conditions upon the issuance of the permit to provide for the least impact on surrounding property. Permits shall be for a period of time not to exceed three months. The zoning administrator may review and grant an extension of time not to exceed one additional three-month period. (Ord. 96-555 § 1.3, 1997)

17.04.040 Severability.

Should any article, section, clause or provision of this Zoning Code be declared by a court of competent jurisdiction to be unconstitutional or invalid, such decision shall not affect the validity of the ordinance codified in this title as a whole or any part thereof other than the part declared to be unconstitutional or invalid, each article, section, clause and provision hereof being declared severable. (Ord. 96-555 § 1.4, 1997)

17.04.050 Rules for construction of language.

A. General. All provisions, terms, phrases and expressions contained in this Zoning Code shall be construed in order that the true intent and meaning of the metropolitan county council may be fully carried out.

B. Computation of Time. The time within which an act is to be done shall be computed by excluding the first and including the last day; if the last day is a Saturday, Sunday or legal holiday, that day shall be excluded. In the computation of time for public hearing notice, both the first day (day of the advertisement) and the last day (day of the hearing) shall be excluded. The following time-related words shall have the meanings ascribed below.

1. "Day" means a calendar day unless working day is specified.

2. "Week" means seven calendar days.

3. "Month" means a calendar month.

4. "Year" means a calendar year, unless otherwise indicated.

C. Conjunctions. Unless the context clearly indicates to the contrary, conjunctions shall be interpreted as follows:

1. "And" indicates that all connected items, conditions, provisions or events shall apply.

2. "Or" indicates that one or more of the connected items, conditions, provisions or events shall apply.

3. "Either or" indicates that the connected items, conditions, provisions or events shall apply singularly but not in combination.

D. Delegation of Authority. The head of a department or other officer may authorize subordinates to perform the required acts or duties of this Zoning Code unless the terms of the provision or section specify otherwise.

E. Jurisdiction. The words "Nashville" or "Metropolitan Nashville" mean the area of jurisdiction of the Metropolitan Government of Nashville and Davidson County, exclusive of the incorporated municipalities.

F. Nontechnical and Technical Words. Words and phrases shall be construed according to the common and approved usage of the language, but technical words and phrases and such others as may have acquired a peculiar and appropriate meaning in law shall be construed and understood according to such meaning.

G. Number. A word indicating the singular number may be extended and applied to include the plural. The use of the plural number shall be deemed to include the singular unless the context clearly indicates the contrary.

H. Fractions. When any requirement of these regulations results in a fraction of a dwelling unit or other measurement, that fraction will be disregarded and the fraction if less than 0.5 shall be rounded down the nearest whole number, and if equal to or greater than 0.5 shall be rounded up to the nearest whole number.

I. Public Officials, Bodies and Agencies. All public officials, bodies and agencies to which reference is made are those of the Metropolitan Government of Nashville and Davidson County, unless otherwise indicated. All professionals to which reference is made shall be licensed to practice in the State of Tennessee.

J. Shall and May. The word "shall" is always mandatory and not discretionary. The word "may" is permissive.

K. Tense. Words used in the past or present tense include the future as well as the past or present, unless the context clearly indicates the contrary.

L. Text. In case of any difference of meaning or implication between the text of this Zoning Code and any figure, the text shall control.

M. "Written" means any representation of words, letters or figures whether by printing or other form or method of writing. (Ord. 99-1616 § 1 (part), 1999; Ord. 96-555 § 1.5, 1997)

17.04.055 Fees, in-lieu contributions and other assessments, estimates or payments.

Fees, in-lieu contributions and other assessments, estimates or payments required by this title or by the metropolitan government in furtherance of this title for single or multi-phase developments shall be determined by the fee or rate at the time of assessment or payment, whichever is later. The Metropolitan Government of Nashville and Davidson County may update fees and rates over time to reflect current standards and/or changes in market rates. (Ord. BL2014-947 § 3, 2014)

17.04.060 Definitions of general terms.

A. Applicability. Words in the text or tables of this title shall be interpreted in accordance with the provisions set forth in this section. Where words have not been defined, the definition found in the most current edition of Webster's Unabridged Dictionary shall be used. The zoning administrator shall have the right to interpret the definition of the word.

B. General Terms.

"Above ground" means visible from the surface of the earth.

"Abutting" means touching or sharing a common point or line. This term shall not be deemed to include parcels that are across a public way from each other.

"Accessory or ancillary building" means a structure detached from a principal building located on the same lot that is customarily incidental and subordinate to the principal building. These structures shall not be used as residential units or commercial activity unless authorized by base zoning, overlay, or appropriate use permit.

"Accessory apartment" means a secondary dwelling unit, attached to a single-family residence, the principal dwelling unit on a lot. The accessory apartment dwelling shall be subordinate in size, height, and purpose to the principal dwelling.

"Accessory use" means a use of land or of a building or portion thereof that is customarily incidental and subordinate to the principal use of the land or building and that is located on the same lot as the principal use.

"Active use" means a habitable space occupied by retail, office, residential, institutional, recreational or similar use, specifically excluding parking and mechanical uses.

"Adjacent" means nearby property touching the property lines of a parcel being considered and including property across streets.

"Adult entertainment" means any "adult bookstore," "adult video store," "adult theater," "adult nightclub," or any commercial establishment which for a fee or incidentally to another service, presents material or exhibitions distinguished or characterized by an emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas," as defined below for observation by patrons therein.

1. "Adult bookstore" means an establishment which, as one of its principal business purposes, offers for sale books, magazines, other periodicals, or any other items which are distinguished or characterized by their emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas" as defined in this section for observation of the patrons therein; or in conjunction therewith has facilities for the presentation of sexually oriented entertainment, including but not limited to sexually oriented movies, sexually oriented videos, sexually oriented films, or sexually oriented live entertainment, as defined in Section 6.54.010 of the Metropolitan Code, for observation by patrons therein.

2. "Adult nightclub" means a theater, concert hall, auditorium, nightclub, bar, restaurant or similar commercial establishment which regularly features live performances that are characterized by the exposure of "specified sexual activities" or by "specified anatomical areas," as defined below.

3. "Adult theater" means an enclosed building regularly used for presenting films, motion pictures, video cassettes, slides, or other photographic reproductions or other material depicting, describing or relating to "specified sexual activities" or "specified anatomical areas," as defined below for observation by patrons therein.

4. "Adult video" means a video, CD, laser disk, or similar medium with a cover available that depicts "specified sexual activities" or "specified anatomical areas."

5. "Adult video store" means a commercial establishment which, as one of its principal business purposes offers the sale or rental, or presentation for a fee or incidentally to another service, "adult videos," as defined in this section; or in conjunction therewith, regularly presents on the premises sexually oriented motion pictures or sexually oriented films, "adult videos," or sexually oriented live exhibitions which are distinguished or characterized by an emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas" as defined in this section and in Section 6.54.010 of the Metropolitan Code for observation by patrons therein.

6. "Specified anatomical areas" means:

a. Less than completely and opaquely covered:

i. Human genitals; pubic region,

ii. Buttock, and

iii. Female breast below a point immediately above the top of the areola; and

b. Human male genitals in a discernibly turgid state, even if completely and opaquely covered.

7. "Specified sexual activities" means:

a. Human genitals in a state of sexual stimulation or arousal;

b. Acts of human masturbation, sexual intercourse or sodomy;

c. Fondling or other erotic touching of human genitals, pubic region, buttock or female breast.

"Affordable housing" means housing that, on an annual basis, costs thirty percent or less than the estimated median household income for households earning sixty percent or less than the median household income for the applicable county based on the number of persons in the household, as established by Median Household Income in the Past 12 Months by Household Size (B19019) from the most recently available U.S. Census Bureau American Community Survey.

"After hours establishment" means any establishment open to the general public at any time between the hours of 3:00 a.m. and 6:00 a.m., which has for its primary purpose entertainment, teen clubs, dance clubs, and establishments which feature the playing of live or recorded music. If the establishment requires a cover charge upon entry, contains a dance floor, or uses either a disc jockey or a live band, it shall be considered an 'after hours establishment,' regardless of whether the establishment serves or sells prepared food for consumption.

"Agricultural activity" means the raising of animal, fowl, fish and agricultural or horticultural crops, including but not limited to soybeans, tobacco, timber, orchard fruits, vegetables, flowers and/or ornamental plants for commercial purposes.

"Airport, medium or large commercial service" means publicly owned passenger and cargo loading and unloading facilities for aircraft and helicopters that receive scheduled passenger service and has at least .25% of national passenger boardings each calendar year. Included are runways, hangars, refueling and repair facilities, parking and all other facilities needed to operate aircraft or conduct an aeronautical activity. Uses indicated on the Airport Layout Plan approved by the FAA, or associated with supporting the passenger experience, including but not limited to ticket purchasing, restaurant, retail and other concessions, vehicular rental/leasing, ground transportation services, and hotel, or uses associated with construction activities are permitted as accessory uses.

"Airport/heliport" means passenger and freight loading and unloading facilities from aircraft and helicopters. Included are runways, hangers, refueling and repair facilities, parking and all other facilities needed to operate aircraft. Ticket purchasing, restaurants and retail stores are permitted as accessory uses.

"Alley" means a public or private right-of-way primarily designed for access to the side or rear of properties.

"Alternative financial services" means any building, room, space or portion thereof where an establishment provides a variety of financial services, including but not limited to cash advance, title loans, check cashing, pawnshops and flex loans, and such establishment is not a state or federally chartered bank, a savings and loan association, industrial loan and thrift company licensed by the state of Tennessee under Title 45, Chapter 5 of the Tennessee Code Annotated and providing only the services authorized under that chapter, or credit union, a mortgage company, a financial institution whose services are insured by an agency of the United States government, or any other entity offering financial services that is not determined to be a financial institution as defined under this section.

"Alternative structure" means a structure that is not primarily constructed for the purpose of holding antennas but on which one or more antennas may be mounted, including but not limited to buildings, water tanks, pole signs, billboards, church steeples, electric power transmission poles/towers, and streetlights.

"Animal boarding facility" means any buildings or land used, designated or arranged for the temporary boarding, care and grooming of domesticated dogs and cats for profit. This use does not include an animal hospital.

"Animal hospital" means an enterprise for the care and treatment of the diseases and injuries of animals, and where animals may be boarded during their treatment and convalescence.

"Antenna" means any apparatus designed for the transmitting and/or receiving of electromagnetic waves, including telephonic, radio or television communications. Types of elements include omni-directional (whip) antennas, sectionalized or sectorized (panel) antennas, multi or single bay (FM & TV), yagi, or parabolic (dish) antennas, or any other antenna elements approved by the director of information technology services or his delegate.

"Artisan distillery" means the production of alcoholic beverages in quantities not to exceed one thousand barrels per month, with a barrel containing not more

than fifty-five U.S. liquid gallons. No artisan distillery shall be permitted within an adult entertainment establishment.

"Asphalt plant" means the manufacturing asphalt-type roofing materials, asphalt and tar paving mixtures, paving block made of asphalt and various compositions of asphalt or tar with other materials, and the recycling of old asphalt into asphalt-type material. This use also includes the stockpiling of bulk materials required for the process and the storage of the required equipment use in the operation.

"Assisted care living" means a licensed "assisted-care living facility" by the State of Tennessee Board of Health that provides domiciliary care, room, board and nonmedical living assistance service to primarily aged, ambulatory persons (sixty-two years of age or older) who live in a rooming unit. Where there is a common kitchen and communal area for all residents within the facility, three rooming units in the facility shall be counted as one dwelling unit for determining the facility's density.

"Attachment" means a building element permitted beyond the front of the "Build-to Zone", but not into the right-of-way.

"Auction house" means an establishment where the real or personal property of others is sold by a broker or auctioneer to persons who attend scheduled sales or events.

"Audio/video tape transfer" means the production of multiple copies of audio or visual tapes from master copies.

"Automated teller machine (ATM)" means a facility to provide banking and other electronic services that are operated by the customer.

"Automobile" means any vehicle designed for carrying 10 passengers or less, is used for the transportation of persons, and has a gross weight of less than 10,000 pounds, but excluding motorcycles and vehicles used to carry passengers for a fee.

"Automobile convenience" means a facility where flammable and combustible liquids, such as gasoline and other motor fuels, are stored and subsequently dispensed, by use of fixed approved dispensing equipment by customers of the facility on a self-service basis and/or by employees on a full-service basis and which may include an automatic car wash for washing one automobile at a time, within an enclosed building; in addition, a facility which also provides sandwiches, snacks, staple groceries and other similar retail products or services, which are not recognized or defined by the Zoning Code as separate uses or as necessary components of separate uses, for sale on premises for consumption off premises by the customer.

"Automobile parking" means the use of property for the commercial parking or storage of operable automobiles on a temporary basis. This does not include the providing of off-street parking required for a use by Chapter 17.20. Such parking shall be for the use of licensed vehicles only and is not intended to include merchandise or vehicles for sale.

"Automobile repair" means any building, structure, improvements, or land used for the general repair, adjusting, overhauling, removing, replacing, rebuilding, or reconditioning of automobiles and engines, including but not limited to body, frame or fender straightening or repair, the reconditioning, repairing, sale, mounting, or installing of any used tires, welding, painting, or upholstery work, collision repair, vehicle steam cleaning, but excluding the assembly, disassembly, dismantling or salvage of automobiles, in whole or in part. No abandoned vehicles shall be stored on the premises. No vehicle to be repaired shall remain on the premises more than forty-five days.

"Automobile sales, new" means a franchised retail automobile dealership that is primarily housed in a structure and characterized by a mixture of secondary supporting uses; however, the principal use of the site shall be the marketing and display of new automobiles, whether by sale, rental, lease or other commercial or financial means. Secondary supporting uses may include an inventory of vehicles for sale or lease either on-site or at a nearby location of new or used automobiles in operating condition, and on-site facilities for the repair and service of automobiles previously sold, rented, or leased by the dealership as defined under "Automobile Repair" and "Automobile Service". No abandoned vehicles shall be stored on the premises.

"Automobile sales, used" means a retail business which sells operable, used automobiles that pass state vehicle inspection requirements upon display in the open for sale or trade. Secondary supporting uses may include the service of automobiles previously sold or traded as defined under "Automobile Service". No "Automobile Repair" or "Scrap Operation" activities may occur on-site and no abandoned vehicles shall be stored on the premises.

"Automobile service" means any building, structure, improvements, or land used for the replacement of any part, or repair of any part, to an automobile that does not require removal of the engine head or pan, engine transmission or differential, including, but not limited to oil change and lubrication, cooling, electrical, fuel and exhaust systems, wheel alignment and balancing, brake adjustment, relining and repairs, mufflers, batteries, new tire services and sales, shock absorbers, installation of stereo equipment, car alarms or cellular phones, but

excludes dismantling, rebuilding, reconditioning, or salvage of automobiles, in whole or in part. No abandoned vehicles shall be stored on the premises. No vehicle to be serviced shall remain on the premises more than forty-five days.

"Awning" means a structural extension over the exterior of a door or window which provides protection from the elements.

"Balcony" means an unenclosed habitable structure cantilevered or recessed from a facade.

"Bar or nightclub" means any establishment primarily in the business of the sale of alcoholic beverages for on-premises consumption and possessing the appropriate licenses for such.

"Basal area" means cross sectional square footage measured by going through the trunk of a tree on a parallel plane to the ground at diameter breast height.

"Base station" means equipment and non-tower supporting structure at a fixed location that enable wireless telecommunications between user equipment and a communications network. Examples include transmission equipment mounted on a rooftop, water tank, silo or other above ground structure other than a tower. The term does not encompass a tower as defined herein or any equipment associated with a tower. "Base station" includes, but is not limited to: equipment associated with wireless telecommunications services such as private, broadcast, and public safety services, as well as unlicensed wireless services and fixed wireless services such as microwave backhaul; radio transceivers, antennas, coaxial or fiber optic cable, regular and backup power supplies, and comparable equipment, regardless of technological configuration (including distributed antenna systems and small-cell networks); any structure other than a tower that, at the time the application is filed under this section, supports or houses equipment described in this definition that has been reviewed and approved under the applicable zoning or siting process, or under another metro regulatory review process, even if the structure was not built for the sole or primary purpose of providing such support. "Base station" does not include any structure that, at the time the application is filed under this section, does not support or house wireless communication equipment.

"Bed and breakfast inn" means a commercial establishment with four through ten furnished guest rooms whose principal use is for paid accommodation to guests. Bed and breakfast inns shall be occupied by the owner-occupant and/or a full-time live-in manager. Meals may be provided to overnight guests. The maximum stay for any guest shall be fourteen consecutive days.

"Beer and cigarette market" means a retail establishment where the majority of the inventory available for purchase is alcoholic beverages with an alcoholic content of eight percent alcohol by weight or less and/or any product containing or used for consuming nicotine, cannabidiol (CBD), tetrahydrocannabinol (THC), or other similar substances.

"Bike lane" means a section of a roadway which has been designated by striping, signing and pavement markings for the exclusive use of bicyclists.

"Bikeway" is a generic term for any road, street, path, or way that in some manner is specifically designated for bicycle travel, it may be for the exclusive use of bicycles or to be shared with other transportation modes.

"Block" means a unit of land bounded by streets or by a combination of streets and public land, railroad rights-of-way, waterways or any other barrier to the continuity of development.

"Block face" means a single boundary of a block described in the definition of a Block. A block face is opposing when it is across a public street.

"Boarding house" means a residential facility or a portion of a residential dwelling unit for the temporary accommodation of persons or families in a rooming unit, whether for compensation or not, who are in need of shared lodging and personal services, supervision, or rehabilitative services.

"Boat storage" means the use of property for the commercial parking or storage of boats. Such parking/storage is not intended to include boats for sale.

"Breakpoint technology" means the engineering design of a monopole, or any applicable support structure, wherein a specified point on the monopole is designed to have stresses concentrated so that the point is at least five percent more susceptible to failure than any other point along the monopole so that in the event of a structural failure of the monopole, the failure will occur at the breakpoint rather than at the base plate, anchor bolts, or any other point on the monopole.

"Buffer" means an area of land, including landscaping, berms, wall and fences, which is located between specified uses or rights-of-way.

"Building" means any structure that encloses a space used for sheltering any occupancy.

"Building contractors supply" means the construction and incidental storage activities performed by construction contractors on zone lots other than construction sites, as well as the retail or wholesale sale of materials used by the construction trades.

"Building permit" means a permit required by Title 16 of the Metropolitan Code for the construction, alteration, expansion or renovation of a structure.

"Building type" means a classification of buildings by function, disposition and configuration that provides

the norm against which variations are assessed and classified. Buildings shall be classified as residential, commercial, industrial, civic, or support.

"Build-to zone" means an area established within a given lot indicating where the building frontage must be located. Depending on particular circumstances, the build-to zone may be measured from the property line, the back of an easement, or the back of the sidewalk.

"Bulk regulations" means standards and controls that establish the maximum size of buildings and structures on a lot and the buildable area within which the building can be located, including coverage, setbacks, height, impervious surface ratio, floor area ratio and yard requirements.

"Business school" means an enterprise offering instruction and training, including four-year degrees and/or postgraduate degrees, in a service or the arts such as secretarial, cosmetology, commercial artist, computer software, legal, and similar training, provided that such enterprise does not offer student housing or athletic facilities at the site.

"Business service" means the provision of services required for the day to day operation of a business such as, but not limited to, consulting service, photocopy or office supply.

"Caliper inches" means the quantity in inches of the diameter of a tree measured at a height of six inches above the ground for trees with a diameter of four inches and under, and at twelve inches above the ground for trees over four inches in diameter.

"Camp" means a place where children, youth and adults gather together for spiritual, recreational, or educational purposes in an organized and supervised manner, and where overnight lodging (e.g. tents, cabins), food, counseling, religious, and outdoor recreational activities may be provided.

"Canopy" means a roof projection over a door, entrance into a building, a drive thru window or other business-related uses, including automatic teller machines (ATM), bank by car facilities, fuel pumps and the like, which is supported only by an attachment to the main building or by posts or columns, and is without walls.

"Car wash" means a building or portion thereof containing facilities for washing more than two automobiles, using production-line methods with a chain conveyor, blower, steam cleaning device or other mechanical devices within an enclosed structure or a self-service facility with one or more wash bay(s) that is free or coin-operated. Car wash also includes operations that are done by hand such as auto detailing.

"Cash advance" means any building, room, space or portion thereof where unsecured, short-term cash advances are provided, including those made against future pay checks, as regulated by Title 45, Chapter 17, of the Tennessee Code Annotated.

"Cellular on wheels (COW)" means a temporary PWSF placed on property to provide short term, high volume telecommunications services to a specific location and which can be easily removed from the property.

"Certificate of compliance" means approval by the zoning administrator that a use, building or structure complies with the provisions of this Zoning Code.

"Check cashing" means any building, room, space or portion thereof where checks are cashed in exchange for a fee, as regulated by Title 45, Chapter 18, of the Tennessee Code Annotated.

"Civic building" means any building designed and constructed for community use or benefit by governmental, cultural, educational, public welfare, religious or transportation organizations.

"Club" means a facility which offers social, educational, cultural or other similar activities that are only available to members and their guests.

"Collection center" means a facility which is staffed and fenced that has waste receptacles on site that are open to the public, when an attendant is present, to receive household waste, municipal solid waste and recyclable material.

"College or university" means an institution of higher education offering undergraduate or graduate degrees.

"Collocation" means the mounting or installation of transmission equipment on an eligible support structure for the purposes of transmitting and/or receiving radio frequency signals for communications purposes so that installation of a new support structure will not be required, including an eligible facilities request or a qualified collocation request.

"Columnar tree" means a fastigiate tree that narrows toward the top, having an upright narrow form, typically with branches that point upward, often nearly parallel to the main stem or trunk, thereby resembling a single column.

"Commercial amusement, inside" or "inside commercial amusement" means the provision of entertainment, performances or games of skill to the general public for a fee, or a permanent event space, and that is wholly enclosed in a building, including but not limited to a bowling alley, billiard parlor, batting facility, golf driving range, skating rink, wall climbing, arcade, or sport simulation. This use does not include an arena.

"Commercial amusement, outside" or "outside commercial amusement" means the provision of entertainment or games of skill to the general public for a fee, or a permanent event space, where any portion of the activity takes place outside of a building, including but

not limited to a golf driving range, archery range, miniature golf course, batting facility, or go-kart track. This use does not include a stadium.

"Commercial community gardening" means an individual or group of individuals growing and harvesting food crops and/or non-food, ornamental crops, such as flowers, for commercial sale. Commercial community gardens may be divided into separate plots for cultivation by one or more individuals or may be farmed collectively by members of the group and may include common areas maintained and used by group members.

"Commercial establishment" means an establishment used for the conduct of a business.

"Common open space" means land and/or an area of water within the site designed and intended for the use or enjoyment of the occupants, which may contain such complementary structures and improvements as are necessary and appropriate for the benefit and enjoyment of the occupants of the development.

"Communications hut" means a non-habitable structure that contains equipment for communications services.

"Community education" means instructions on a elementary, middle and high school level, approved under the regulations of the state.

"Completion" means the earliest of the following dates: The date a temporary certificate of occupancy is issued by the Metro Government for a project, the date a certificate of occupancy is issued by the Metro Government for a project, or the date the final inspection approving the project is completed.

"Concrete plant" means the production of concrete that uses a manufacturing process involving the mixing of a number of aggregates, sand, water, cement, and/or other components. This use also includes the stockpiling of bulk materials required for the process and the storage of the required equipment use in the operation.

"Consignment sale" means a sale of personal property by someone who is acting as an agent of another.

"Construction" means the building, rehabilitation, remodeling, renovation or repair of any structure, landscape, hardscape, or any portion thereof, including any associated tenant improvements.

"Construction and demolition (C&D) waste, debris, or material" means discarded materials resulting from construction, remodeling, repair, demolition, or salvage operations that are generally considered not to be water soluble and nonhazardous in nature, including but not limited to steel, glass, brick, concrete, asphalt material, pipe, gypsum, wallboard, ceiling tiles, ceramic tile, carpeting, and lumber from the construction or destruction of a structure as part of a construction or demolition project or from the renovation of a structure and/or landscaping, and including rocks, soils, tree remains, trees, and other vegetative matter that normally results from land clearing, landscaping and development operations for a construction project.

"Construction/demolition waste processing (project-specific)" means space designated during the term of the demolition or construction project, located either physically on the project site or on another property within a one-half mile radius of the project site boundary, where the project contractor shall divert construction and demolition debris for purposes of recycling, salvaging, and disposing of materials recovered from demolition of existing, or construction of new, buildings and structures on the project site. No materials shall be received from any other construction project, other than the designated project, for which the space was originally intended.

"Correctional facility" means a facility for the housing and care for individuals legally confined for violations of law.

"Cottage development, single-family" or "single family cottage development" means a single-family residential development of four to ten dwelling units arranged on small lots on at least two sides of a common open space with frontage onto a street of sufficient width to allow direct pedestrian access to the street. Vehicular access is via an abutting alley or private drive.

"Critical root zone (CRZ)" means the area of soil around a tree where the minimum area of roots considered critical to the structural stability and health of the tree are located. The CRZ is to be determined by measuring one foot per each inch of tree diameter at breast height, with a minimum of ten feet.

"Cultural center" means services to the public, such as, but not limited to museums, art galleries and libraries.

"Custom assembly" means the on-site production of goods by hand manufacturing that generally involves only the use of hand tools. Incidental direct sale to consumers of the goods produced on-site is permitted.

"Curb level" means the elevation obtained by averaging the points located where the side lot lines of a lot extended will intersect the nearest edge of the travelway of that street.

"Day care" means the provision of care for individuals, who are not related to the primary caregiver, for less than twenty-four hours per day. These classes are referenced:

1. Accessory to a single-family dwelling: Up to four individuals;

2. Day care home—Small: Five through seven individuals;

3. Day care home—Large: Eight through twelve individuals;

4. Class I: Thirteen through twenty-five individuals;

5. Class II: Twenty-six through fifty individuals;

6. Class III: Fifty-one through seventy-five individuals;

7. Class IV: More than seventy-five individuals;

8. Parents day out: Day care for pre-teenage children that is not open for more than twelve hours in any one week;

9. School day care: Day care centers of unlimited size for before, during and after school programs.

"Decibel A-weighted (dBA)" means a unit for describing the amplitude of sound as measured on a sound level meter using the A-weighting network.

"Demolition" means the decimating, razing, ruining, tearing down or wrecking in whole or in part, any facility, structure, foundation, landscaping, pavement or building, (wall, fence) whether in whole or in part, whether interior or exterior.

"Density" means a numerical ratio representing the total number of residential dwelling units on a lot divided by the horizontal area of the lot, expressed in terms of "units per acre."

"Detached accessory dwelling unit" means a detached dwelling unit separate from the principal single-family structure on any lot, or within any urban design overlay with development standards for detached accessory dwelling units. The dwelling shall be clearly subordinate in size, height, and purpose to the principal structure, it shall be located on the same lot as the principal structure and is detached from the principal structure. A detached accessory dwelling unit can be an independent structure, it can be a dwelling unit above a garage, or it can be attached to a workshop or other accessory structure on the same lot as the principal structure.

"Diameter breast height (DBH)" means the diameter in inches of a tree measured at four and one-half (4½) feet above the existing grade.

"Distributed antenna system (DAS)" means a system consisting of: (1) a number of remote communications nodes deployed throughout the desired coverage area, each including at least one antenna for transmission and reception; (2) a high capacity signal transport medium (typically fiber optic cable) connecting each node to a central communications hub site; and (3) radio transceivers located at the hub site (rather than at each individual node as is the case for small cells) to process or control the communications signals transmitted and received through the antennas.

"Distributive business/wholesale" means the sale or distribution of goods from the premises that may consist of the flexible use of the floor area for warehouse, assembly, showroom and office space within tenant areas, with the showroom and office area not exceeding fifty percent of the total floor area permitted on the parcel.

"Domestic animals/wildlife" means native and exotic animals and common domestic farm animals, defined as Class II and Class III wildlife (Tennessee Code Annotated 70-4-403) which are kept outdoors for any purpose other than agricultural business.

"Domesticated hens" means female chickens that may, where permitted, be kept and maintained for the non-commercial production of eggs, education, companionship, or recreation. Other types of fowl and poultry shall not be considered domesticated hens.

"Donation center, drop-off" means any lot, building, structure or premises used solely for the collection of clothing furniture, housewares, small electrical appliances, household textiles, toys, and other small household items. The center shall not pay for materials collected or sell any collected materials on the premises. Collected materials shall be stored in an enclosed location on-site until picked up and taken to a central sorting and distribution center. Types of drop-off donation centers range from storefront centers, which may include a drive-thru facility, to other enclosed facilities.

"Driving range" means an area equipped with distance markers, clubs, balls, and tees for practicing golf drives and putting, and which may include a snack-bar and pro-shop, but excludes miniature golf courses and "putt-putt" courses.

"Dwelling unit" means a single unit providing complete, independent living facilities for one family including permanent provisions for living, sleeping, eating, cooking and sanitation.

"Eave line" means the extension of a roof line beyond the vertical wall of a building.

"Elderly housing" means multi-family housing that is restricted to occupation by an "elderly person" as defined by 24 CFR 891.205, or "elderly family" as defined by 24 CFR 891.505. Elderly housing shall be subject to the same requirements under this Zoning Code as multi-family housing, except where a specific standard or requirement is otherwise provided. Elderly housing shall include one or more of the following:

1. A recorded declaration of land use restrictive covenants for low-income housing tax credits for the benefit of the Tennessee Housing Development Agency that restricts the housing to occupancy only by an elderly person or elderly family;

2. A recorded declaration of land use restrictive covenants for the benefit of the metropolitan development and housing agency that restricts the housing to occupancy only by an elderly person or elderly family;

3. A recorded use agreement between the owner of the property and the U.S. Department of Housing and Urban Development pursuant to Section 202 of the Housing Act of 1949 (12 U.S.C. 1701q), as amended; or

4. Documentary proof that the property has received an exemption from property taxes pursuant to Tenn. Code Ann. § 67-5-207.

"Electric vehicle" or "EV" means an automotive-type vehicle for on-road use that is no larger than a Class 2 vehicle according to the Federal Highway Administration, such as passenger automobiles, trucks, vans, neighborhood electric vehicles, and electric motorcycles, primarily powered by an electric motor that draws current from a rechargeable storage battery, fuel cell, photovoltaic array, or other source of electric current. Plug-in hybrid electric vehicles (PHEV) are electric vehicles having a second source of motive power. It does not include golf carts, electric scooters, electric bicycles, or other micromobility devices.

"Electric vehicle charging facility" means a site or facility whose principal use is the charging of electric vehicles (EVs). This use may include:

1. Electric vehicle supply equipment (EVSE) for electric vehicles;

2. Associated infrastructure such as transformers, switchgear, utility interconnection equipment, and battery energy storage systems;

3. Queuing areas, drive aisles, and circulation space for vehicles;

4. Accessory buildings used solely for staff support, such as restrooms, utility closets, and break areas;

5. Fencing, lighting, and security infrastructure;

6. Optional integration of renewable energy systems such as solar canopies and batteries;

7. Continuous operations; twenty-four hours a day, seven days a week.

This shall not include the following uses: "automobile repair," "automobile service," "automobile convenience," and "car wash."

"Electric vehicle supply equipment" or "EVSE" means the device or system designed and used for transferring electric energy to a plug-in electric vehicle, including all components such as connectors, conductors, enclosures, associated equipment, and related infrastructure that delivers electricity from the source to the vehicle.

"Electrical service lines" means an electrical line serving limited geographic areas of residential neighborhoods by providing electrical power directly to a residence, or group of residences, and not designed to extend service more than one-half mile.

"Electrical distribution lines" means an electrical line designed to distribute electric power to, and through, agricultural, residential, commercial, and industrial areas.

"Electrical transmission lines" means electrical power lines, feeder circuits, or networks designed to transmit electrical power for regional use.

"Eligible facilities request" means any request for modification of an existing tower or base station involving collocation of new transmission equipment; removal of transmission equipment; or replacement of transmission equipment that does not substantially change the physical dimensions of such tower or base station.

"Eligible support structure" means any tower or base station existing at the time the application is filed with metro. For purposes of this ordinance, the definition of "eligible support structure" shall include utility structures currently hosting fiber, cable and wire.

"Family" means one of the following:

1. An individual, or

2. Two or more persons related by blood, marriage or law, or,

3. A group of two or more unrelated persons living together in a dwelling unit, not to exceed four persons in a dwelling unit with three or fewer bedrooms, and not to exceed five persons in a dwelling unit with four or more bedrooms. Such group may include a combination of related and unrelated persons

4. A group of not more than eight unrelated persons with disabilities including three additional persons acting as support staff or guardians, who need not be related to each other or to any of the persons with disabilities, residing together in a home in accordance with Tennessee Code Annotated § 13-24-102. For purposes of this subsection, 'persons with disabilities' includes persons with a physical or mental impairment which substantially limits one or more of such person's major life activities, a record of having such an impairment, or being regarded as having such an impairment, but such term does not include current, illegal use of or addiction to a controlled substance (as defined in section 102 of the Controlled Substances Act (21 U.S.C. 802)). For the purposes of this subsection, "persons with disabilities" does not include persons who pose a substantial likelihood of serious harm as defined in Tennessee Code Annotated § 33-6-501, or who have been convicted of serious criminal conduct related to such disability.

5. A group of not more than eight unrelated persons over the age of sixty-five, including two additional persons acting as house parents or guardians, living together as a single housekeeping unit.

6. Family, as defined herein, is subject to the occupancy limitations in Section 16.24.400.J of the Metropolitan Code of Laws. Where there is a conflict between the definition of family in this section and the overcrowding provisions in Section 16.24.400.J, the more restrictive limitation shall apply.

"Final site plan" means a detailed set of construction plans that fully demonstrate compliance with all applicable provisions of this code and accurately represent the final form of proposed construction, serving as the basis for the issuance of zoning permits and certificates of compliance.

"Financial institution" means any building, room, space or portion thereof where an establishment provides a variety of financial services and is a state or federally chartered bank, savings and loan association, industrial loan and thrift company licensed by the State of Tennessee under Title 45, Chapter 5 of Tennessee Code Annotated and providing only the services authorized under that chapter, or credit union, a mortgage company, or other financial institution whose services are insured by an agency of the United States government, but excluding alternative financial services.

"First floor elevation" means the height of the first floor of a building above the ground.

"Flea market" means the offering for sale of merchandise or goods to the general public on a temporary basis by two or more vendors, at least one of whom is not the owner of the property on which the offering is made. Excluded from the definition of "flea market" are establishments conducting business during regular hours throughout the year that meet the general definition of "retail".

"Flex loan" means any building, room, space or portion thereof where a written agreement providing open-end credit, either unsecured or secured by personal property, in which repeated non-commercial loans for personal, family or household purposes is contemplated, as regulated by Title 45, Chapter 12, of the Tennessee Code Annotated.

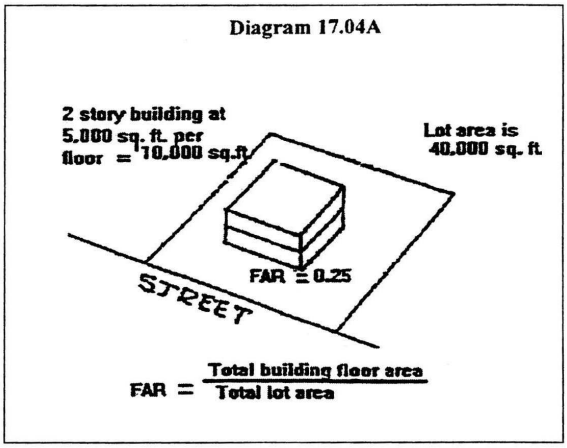
Flood, 100-year. "100-year flood" means a standard adopted by the Federal Emergency Management Agency (FEMA) to identify areas where there exists a one percent annual chance of a flood occurring.

"Floodplain" means land area, including the floodway of any river, stream or watercourse, susceptible to being inundated by water as identified by the 100-year flood.

"Floodway" means the channel of a stream that has current, direction and velocity to it during a flood, and in which debris may be carried.

"Floor area" means the total of the gross horizontal areas of all floors, including usable basements and cellars, below the roof and within the outer surfaces of the main walls of principal or accessory buildings (or the center lines of party walls separating such buildings or portions thereof) or within lines drawn parallel to and two feet within the roof line of any building or portion thereof without walls.

"Floor area ratio (FAR)" means the total floor area of all structures on a lot, divided by the total horizontal area of the lot. See Diagram 17.04A.



"Footprint" means the area delineated by the outer edge of the foundation of a building, any second-floor cantilevers, or carports, whichever is greater.

"Fraternity/sorority house" means living quarters for private social organizations serving students of colleges or universities.

"Frontage" means any portion of a lot that abuts a public street (excluding alleys) and "open space".

"Frontage, minor" means the frontage with lesser pedestrian importance.

"Frontage, principal" means the frontage of highest pedestrian importance.

"Front facade" means the front vertical face of a building that is substantially in one plane, has associated with it a primary entrance, and is composed from the following architectural components: exterior walls; columns or other vertical structural elements; windows; doors; roof edges; permanently roofed recesses; and arcades, balconies, or porches with permanent roofs supported by vertical structural supports.

"Fuel storage" means the storage of motor vehicle fuels for use by vehicles of an institution or business entity located on the same property.

"Garage sale" means sale of personal property by homeowner or occupant of real property.

"General plan" means an official public document adopted by the metropolitan planning commission in accordance with Sections 11.504(e) and 18.02 of the Charter of Metropolitan Government of Nashville and Davidson County to provide the overall basis for zoning development decisions. Individual subarea plans that

provide detailed guidance for specific areas are adopted by the commission and become a part of the general plan.

"Grade" means in the DTC zoning district the elevation of the sidewalk across a lot frontage measured in the build-to-zone.

"Greenway" means a linear park, alternative transportation route, or open space conservation area approved by the metro greenways commission that provides passive recreational opportunities, pedestrian and/or bicycle paths, and/or the conservation of open spaces or natural areas, as indicated in a greenway plan adopted by the commission.

"Grocery store" means a retail establishment that primarily sells food, including canned, packaged, and frozen foods; fresh fruits and vegetables; and fresh (raw) and prepared meats, fish, and poultry.

"Habitable space" means building space the use of which involves human presence with direct view of the fronting street, or public or private open space, but excluding parking garages, self-service storage facilities, warehouses, or similar.

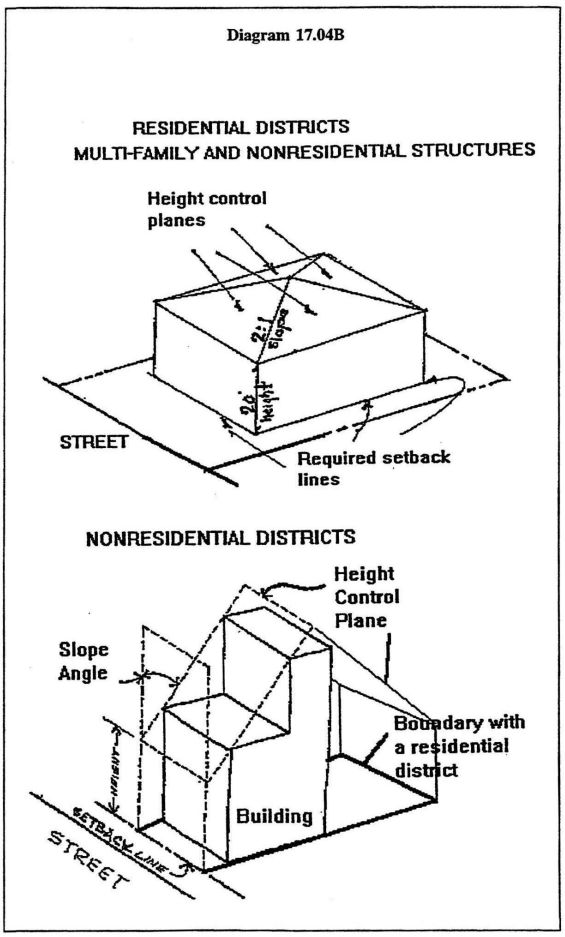
"Handicrafts" or "handcrafted" means an object that requires use of the hands, hand tools and human craft skills in its production, and is not mass produced.

"Hazardous operation" means a use that may present serious hazards to human life and health such as, but not limited to arsenals, atomic reactors, explosives and fireworks manufacture.

"Heavy equipment sales and service" means the retail or wholesale sale or rental of heavy motorized vehicles or equipment, along with incidental service or maintenance such as, but not limited to construction equipment rental yards, tractor-trailers, semi-trailers, boats, buses, recreational vehicles, farm equipment and moving trailer rental. (See "Automobile sales, new", "Automobile sales, used", "Automobile repair", "Automobile service", "Vehicular, rental/leasing", and "Vehicular sales and service, limited.")

"Height control plane" means an imaginary inclined plane that slopes over a lot to establish the maximum height of structures on that lot. The plane begins above grade at the height established in Tables 17.12.020B and 17.12.020C and slopes inwardly at the slope established by those tables. See Diagram 17.04B.

Diagram 17.04B



"Helistop" means a helicopter landing area for boarding and discharging the occupants of the craft. Maintenance or fueling is not permitted.

"Historic bed and breakfast homestay" means three or fewer furnished guest rooms for pay within a private, owner-occupied historically significant structure. Meals may be provided to overnight guests. The maximum stay for any guest shall be fourteen consecutive days.

"Historic home event" means the hosting of events such as, but not limited to, weddings or parties for pay in a private home which has been judged to be historically significant by the historical commission.

"Historically significant structure" means a structure that meets one of the following criteria:

1. The structure is individually listed or is eligible for listing in the National Register of Historic Places as determined by the metropolitan historic zoning commission of Nashville and Davidson County, or by the Tennessee Historical Commission; or,

2. The structure is within a district listed or eligible for listing in the National Register of Historic Places or is within an historic overlay district, such structure having been determined to contribute to the architectural character of the district by the metropolitan historic zoning commission of Nashville and Davidson County or by the Tennessee Historical Commission; or,

3. The structure is within a historic overlay district, or within a district that meets the criteria for designation as a historic overlay district, such structure having been determined to contribute to the architectural character of the district by the metropolitan historic zoning commission of Nashville and Davidson County.

"Home improvement sales" means the retail sale of a diverse range of hardware and related materials generally used in the maintenance, repair or construction of buildings or other structures, including lawn and garden supplies.

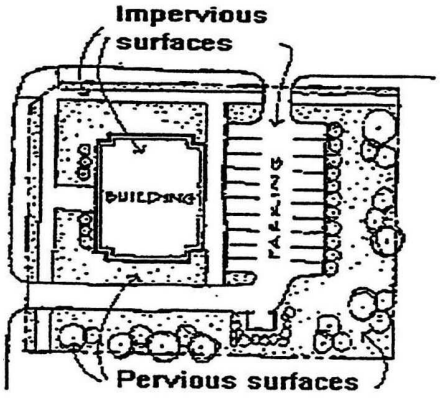
"Home occupation" means an occupation, service, profession or enterprise carried on by a resident member of a family within a dwelling unit.

"Hospice" means an establishment that provides for the physical and emotional needs of terminally ill individuals.

"Hotel" means any commercial establishment, or any portion of such establishment, (A) whose principal use provides that such structure is occupied or intended or designed for occupancy by transients for lodging or sleeping purposes within the area of the jurisdiction of the metropolitan government, and includes any hotel, inn, tourist court, tourist camp, tourist cabin, motel or any place meeting this definition, and (B) accepts on-site reservations for accommodations.

"Impervious Surface Ratio (ISR)" means a ratio derived by dividing the amount of the site that is covered by any material that substantially reduces or prevents the infiltration of stormwater by the total horizontal area of the lot. Impervious surfaces include, but are not limited to, roofs, streets, sidewalks and parking lots paved with asphalt, concrete, compacted sand, compacted gravel or clay. See Diagram 17.04C.

Diagram 17.04C



IMPERVIOUS SURFACE RATIO (ISR)

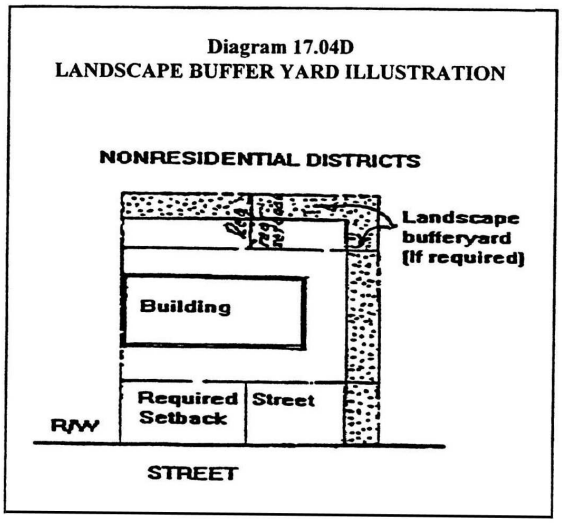
$$ISR = \frac{\text{Impervious surface area}}{\text{Area of the lot}}$$

"Incidental alteration" means modifications to a building or structure that are of a cosmetic nature, replacement of utilities, re-arrangement of internal partitions. The replacement of load-bearing walls is not permitted.

"Inventory stock" means the incidental storage of goods, chattels or products within the structure where sold at retail or wholesale.

"Kennel/stable" means any lot, building, structure or premises used for the boarding, breeding, training, and/or raising of domestic animal/wildlife (excluding livestock), whether by owners of such animals or by persons providing facilities and care, whether or not for compensation, but shall not apply to the keeping of animals in a municipal animal pound, pet store, a bona fide laboratory for scientific or experimental purposes (e.g. dental, veterinary, pharmaceutical or biological) or in a veterinary establishment for the purpose of observation and/or recovery necessary to veterinary treatment.

"Landscape buffer yard" means a required yard located at the perimeter of the lot containing landscaping, berms, walls or fences that shield uses on adjacent properties from those uses occurring on the subject property. See Diagram 17.04D.



"Landfill, construction/demolition" means the disposal of nonbiodegradable waste resulting from road building, construction, remodeling, repair or demolition of structures.

Landfill, sanitary. "Sanitary landfill" means the burial of nonhazardous and non-medical farm, residential, institutional, commercial or industrial waste.

"Landowner" means the legal or beneficial owner or owners of the land. The holder of an option or contract to purchase, a lessee having a remaining term of not less than fifty years in duration, or other person having an enforceable proprietary interest may be considered a "landowner" for the purposes of this title.

"Leading edge" means that edge of a building's front facade which projects farthest forward on the front portion of a lot. The leading edge may be measured at the forward-most edge of an arcade or of a porch with permanent roof supported by vertical structural supports, but may not be measured at the front-most edge of a projecting awning or stoop.

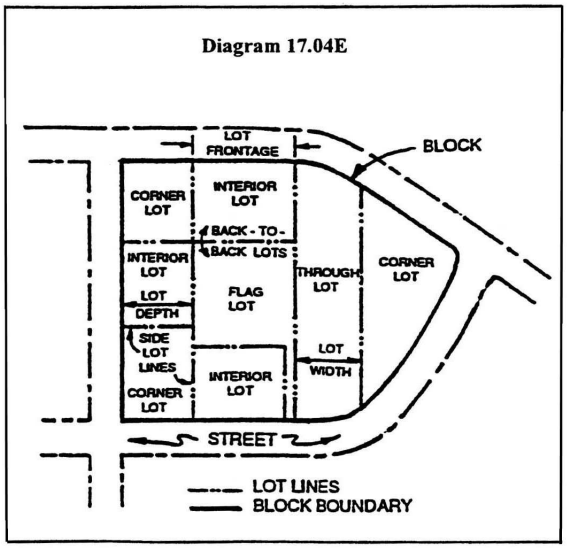
"Liner building" means a building specifically designed to mask a parking garage or structure from a frontage on a public street or public space.

"Listed species" means any plant species designated as endangered, threatened or a species of special concern by the Tennessee Department of Conservation in its "Revised List of Tennessee's Rare Plants" and all amendments thereto.

"Liquor sales" means the retail sale of alcoholic spirituous beverages as defined in Section 57-3-101 Tennessee Code Annotated to patrons or customers, in sealed packages, and not for consumption on the premises.

"Lot" means a tract, plot or portion of a subdivision or parcel of land intended as a unit for the purpose, whether immediate or future, for transfer of ownership or for building development. See Diagram 17.04E. Lot terms used are:

1. "Corner lot" means a lot situated at the intersection of two streets;
2. "Lot area" means the horizontal area included within the boundary lines of a lot; typically stated in terms of acreage (ac.) or square feet (sq. ft.);
3. "Lot depth" means the horizontal distance between the rear lot line (or some other lot line in cases where there is no rear lot line) and the midpoint of the front lot line, measured back from such midpoint in the mean direction of the side lot line.
4. "Through lot" means any lot that adjoins two street lines opposite to each other and parallel or within forty-five degrees of being parallel to each other. Any portion of a through lot that is not or could not be bounded by two such opposite street lines and two straight lines intersecting such street lines shall be subject to the regulations for an interior lot.
5. "Perimeter lot" means a lot which abuts the external boundary of a subdivision, or lot which contains less than the area required by the zoning district that is otherwise adjacent to the external boundary of a subdivision.



"Lot line" means a boundary of a lot. Lot line terms used are:

1. "Front lot line" means the lot line along which a front setback is designated or required.
2. "Lot frontage" means the length of a front lot line along a street or access easement.

3. "Lot width" means the horizontal distance between side lot lines measured at the minimum required front yard setback line.

4. "Rear lot line" means the lot line along which a rear setback is designated or required.

5. "Side lot line" means the lot line along which a side setback is designated or required.

"Major and Collector Street Plan" means a transportation plan required by the general plan and adopted by the planning commission pursuant to Section 13-3-402 and 13-4-302, Tennessee Code Annotated, showing, among other things, the general location, character and extent of arterial-boulevard, arterial-parkway and collector-avenue streets.

"Manufacturing, Artisan" means the shared or individual use of hand-tools, mechanical tools and electronic tools for the manufacture of finished products or parts including design, processing, fabrication, assembly, treatment, and packaging of products; as well as the incidental storage, sales and distribution of such products. Typical artisan manufacturing uses include, but are not limited to: electronic goods; food and bakery products; non-alcoholic beverages; printmaking; household appliances; leather products; jewelry and clothing/apparel; metal work; furniture; glass or ceramic production; paper manufacturing.

Manufacturing, heavy. "Heavy manufacturing" means the manufacture or compounding process of raw materials. These activities or processes would necessitate the storage of large volumes of highly flammable, toxic matter or explosive materials needed for the manufacturing process. These activities may involve outdoor operations as part of their manufacturing process. Typical heavy manufacturing uses include but are not limited to: tile or brick manufacturing; automobile, truck, and tire assembly; ammonia or chlorine manufacturing; metal casting or foundries; gas manufacturing; grain milling or processing; metal or metal ore production, refining, smelting, or alloying; petroleum or petroleum product refining; boat, pool and spa manufacturing; slaughtering of animals; glass manufacturing; paper manufacturing; and wood or lumber processing.

Manufacturing, light. "Light manufacturing" means the manufacture, predominately from previously prepared materials, of finished products or parts, including processing, fabrication, assembly, treatment and packaging of such products, and incidental storage, sales and distribution of such products, but excluding basic industrial processing and custom manufacturing. Typical light manufacturing uses include but are not limited to: electronic goods; food and bakery products; non-alcoholic beverages; paper imprinting; household appliances; leather products; jewelry; food and bakery products; and, clothing apparel.

Manufacturing, medium. "Medium manufacturing" means the processing and manufacturing of materials or products predominately from extracted or raw materials. These activities may include outdoor assembly and storage of products. Outdoor manufacturing of raw materials into compost, primarily for commercial resale, is a medium manufacturing activity. These activities do not necessitate the storage of large volumes of highly flammable, toxic matter or explosive materials needed for the manufacturing process. Typical medium manufacturing uses include but are not limited to: alcoholic beverages; glue; carpet; porcelain products for bathroom and kitchen fixtures; bleaching products; vegetable gelatin; dye stuffs; welding; furniture; and sporting goods;

"Master development plan" means a conceptual plan of development representing the intended integration of differing land uses and/or multiple structures within the framework of a unified design plan served by adequate streets and utilities. Often developed in phases, a master development plan forms the basis for subsequent approvals of detailed final site plans.

Editor's note—The types of development plans within this local jurisdiction that will cause property rights to vest consistent with Tennessee's Vested Property Rights Act of 2014 are found in Resolution RS2014-1330.

"Medical or scientific lab" means a facility for research, testing or investigation of a medical or scientific nature, but not for the production of a product.

"Medical waste" means a facility used to store and/or repackage medical waste for transportation to a processing facility.

"Mezzanine" means in the DTC zoning district a portion of a story. Mezzanine floors that cover more than fifty percent of the story below shall be counted as a full story.

"Microbrewery" means the production of beer, regardless of the percentage of alcohol by volume (ABV), in quantities not to exceed five thousand barrels per month, with a barrel containing thirty-one U.S. liquid gallons.

"Mineral extraction" means the extraction of metallic and nonmetallic minerals or materials, including rock crushing, screening and the accessory storage of explosives.

"Minor improvements" means improvements, including buildings and all other structures, that have a total assessed valuation of ten percent or less of the assessed valuation of the lot upon which they are located.

"Mobile home" means a portable or movable single-wide manufactured home designed and constructed to

permit long-term occupancy for dwelling purposes that is permanently mounted on a single chassis with or without a permanent foundation.

"Mobile storage unit" means the purchase, lease, or rental of any storage unit, trailer, or container that is either set on the ground or on wheels, and which is typically used for, but is not limited to the storage of equipment, excess inventory, layaway items, back-to-school merchandise, seasonal merchandise, records or clearance sale items. A mobile storage unit excludes containers belonging to a railroad or barge operation located in a railroad yard, on a railroad track, and on or near a navigable river.

"Mobile vendor" means a person who peddles, vends, sells, displays, or offers for sale goods, wares or merchandise at a temporary location and/or on a temporary or occasional basis. Notwithstanding the foregoing, vendors selling only food and/or beverages, vendors selling living plants and agricultural products, and street vendors licensed pursuant to [Section] 13.08.040 of the Metropolitan Code of Laws shall not be considered "mobile vendors". Further, a nonprofit organization that is exempt from taxation under the Internal Revenue Code of 1986 (as amended) selling goods, wares, or merchandise as part of a fundraising event shall not be considered a "mobile vendor", provided that a nonprofit organization shall not sell such items at more than two fundraising events per calendar year with a duration not to exceed five days.

"Motor freight" means facilities engaged in the shipment of goods from shippers to receivers for a charge including the services of other transportation establishments to effectuate delivery.

"Multi-copy" means services for instant reproduction of documents by the photocopy process for individual patrons.

"Multi-family" means three or more dwelling units on a single lot or parcel of land.

"Multimedia productions" means a facility for the staging and recording of video or audio productions such as, but not limited to music commercials, programs and motion pictures.

"Nano brewery" means the production of beer, regardless of the percentage of alcohol by volume (ABV), in quantities not to exceed one thousand two hundred fifty barrels per month.

"Native vegetation" means any indigenous tree, plant or shrub adapted to soil and climatic conditions occurring on-site.

"Natural gas compressor station" means a facility designed and constructed to compress natural gas that originates from an oil and gas well or collection of such wells operating as a midstream facility for delivery of oil and gas to a transmission pipeline, distribution pipeline, natural gas processing plant or underground storage field, including one or more natural gas compressors, associated buildings, pipes, valves, tanks and other equipment.

"Non-commercial community gardening" means a group of individuals growing and harvesting food crops and/or non-food, ornamental crops, such as flowers, for personal or group use, consumption, or donation. Community gardens may be divided into separate plots for cultivation by one or more individuals or may be farmed collectively by members of the group and may include common areas maintained and used by group members. Non-commercial community gardening refers to crops for use/consumption by growers only.

"Nonconforming structure" means a structure that was originally legally constructed but which now does not meet one or more of the standards or requirements (other than use) of the zoning district in which it is located.

"Nonconforming use" means a use originally legally established, but which now does not currently conform to the applicable use regulations of the zoning district in which it is located.

"Nonresidential drug treatment facility" means nonresidential drug treatment facilities are characterized by the dispensing of substitute narcotics for the treatment of drug addictions with little or no professional counseling on an outpatient basis.

"Nursing home" means a state licensed facility providing full-time convalescent or chronic care to individuals who, by reason of advanced age, chronic illness or infirmity are unable to care for themselves and require skilled nursing and related medical services.

Office, general. "General office" means the provision of executive, management, administrative or professional services, but not involving medical services.

Office, leasing/sales. "Leasing/sales office" means the use of a unit or dwelling as a leasing and or sales office for other units within that development.

"On-site agricultural sales" means property containing at least five acres of land and used for sale of seasonal agricultural items produced on the property and sold to the public through a roadside stand, farm stand, "cut your own" and/or "pick your own" activity. For purposes of this use "property" shall mean any contiguous, abutting, or adjacent property under the same ownership.

"Open space" means public or privately held land used for stormwater management, use that is not explicitly residential, mixed-use, commercial, or industrial, and

active or passive recreation, including, but not limited to parks, plazas, courtyards, playing fields, trails, greenways, and golf courses.

"Outpatient clinic" means a facility for examining and treating patients with medical problems on an outpatient basis, including ambulatory care or similar medical services that generally require a stay of less than twenty-four hours.

"Park" means any facility that is:

1. Open to the public for recreational uses, including, but not limited to, hiking, swimming, boating, camping;

2. Predominately kept in a natural state; or

3. Property of the local, state or federal government, or any department or agency thereof, specifically designated as a park, natural area or recreation area. However, the term "park" shall not include "greenways" as defined in Metropolitan Code of Laws Section 17.04.060(B).

"Park and ride lot" means the temporary storage of automobiles on a daily basis for persons traveling together to and from work either through carpools, vanpools, buspools or mass transit.

"Parking garage" means a "parking structure".

"Parking structure" means a parking facility consisting of two or more stories which requires ramp access. This does not include a single-story garage, carport or other covered parking area that is otherwise a surface parking lot. A parking structure may be part of a mixed-use building or be a stand alone building.

"Pawnshop" means any building, room, space or portion thereof where a pawnbroker regularly conducts business, as regulated by Title 45, Chapter 6, of the Tennessee Code Annotated.

"Pedestrian benefit zones" means the sixteen zones in which contributions in lieu of sidewalk construction may be collected, and where such contributions shall be spent for the safety and convenience of pedestrians. Pedestrian benefit zones are as follows:

Zone 1: Bounded by I-40 on the south; I-65 on the southeast; Cumberland River on the north; State Route 155 on the west. (North Nashville, Metro Center, Nations areas)

Zone 2: Bounded by Cumberland River and I-65 on the south; I-24 on the east; State Route 155 on the north and west. (Bordeaux area)

Zone 3: Bounded by Cumberland River on the south and east; State Route 155 on the north; I-24 on the east. (East Nashville, Parkwood areas)

Zone 4: Bounded by I-40 on the south; Stones River on the east; the Cumberland River on the north; I-24 on the west. (Spence Lane, Donelson areas)

Zone 5: Bounded by I-440, I-24, and State Route 155 on the south and east; I-40 on the north; I-65 on the west. (South Nashville, North Mill Creek areas)

Zone 6: Bounded by I-440 on the west and south; I-65 on the east; I-40 on the north. (Midtown area)

Zone 7: Bounded by the downtown interstate loop. (Downtown area)

Zone 8: Bounded by the county line on the south; I-65 on the east; I-440 and I-40 on the north; State Route 251, State Route 100, and Harpeth River on the west. (West Nashville, Green Hills areas)

Zone 9: Bounded by the county line on the west and south; Harpeth River, State Route 100, and State Route 251 on the east; I-40 on the north. (Bellevue, Pasquo, Harpeth River areas)

Zone 10: Bounded by I-40 on the south; State Route 155 on the east; Cumberland River on the north; county line on the west. (Newsom Station, Whites Bend, Cockrill Bend areas)

Zone 11: Bounded by Cumberland River and State Route 155 on the south; I-24 on the east and north; county line on the west. (Joelton, Beaman Park, Bells Bend areas)

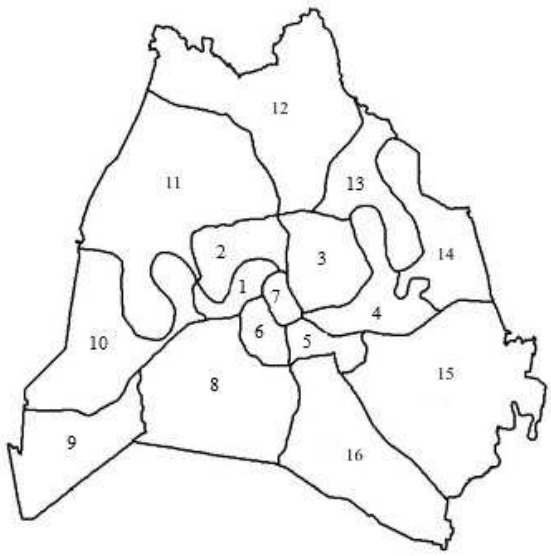
Zone 12: Bounded by State Route 155 on the south; I-65 on the east; county line on the north; and I-24 on the west. (Paradise Ridge, Union Hill, Goodlettsville areas)

Zone 13: Bounded by State Route 155 and Cumberland River on the south and east; county line on the north; I-65 on the west. (Madison, Neelys Bend, Rivergate areas)

Zone 14: Bounded by I-40 on the south; county line on the east; Old Hickory Lake and Cumberland River on the north and west; Stones River on the southwest. (Old Hickory, Lakewood, Hermitage areas)

Zone 15: Bounded by I-24 on the southwest; county line on the south and east; I-40 on the north; State Route 155 on the northwest. (Antioch, Priest Lake areas)

Zone 16: Bounded by county line on the south; I-24 on the east; I-440 on the north; I-65 on the west. (Grassmere, Southeast Nashville, Cane Ridge areas)



Pedestrian Benefit Zones

"Pedestrian passage" means a pedestrian connection between or through buildings or lots, accessible to the public.

"Pedestrian travelway" means the portion of a sidewalk or multi-use path intended to facilitate the unobstructed through movement of pedestrians and/or bicyclists.

"Permanently reside" means to occupy a home or unit as one's legal domicile, where the habitation is fixed and to which, whenever the person is absent, the person has a definite intention to return. Factors relevant to whether an individual permanently resides at a particular home or unit include, but are not limited to, receipt of mail, registration to vote, licensing for activities such as driving, and the licensing or registration of that individual's personal property.

"Personal care services" means services such as fitness centers, spas, tanning salons, beauty and barber care, and dry cleaning and laundry services not to include a laundry plant.

"Personal instruction" means services for training individuals or groups in arts, fitness, personal defense, crafts or other subjects of a similar nature.

"Personal wireless service facility (PWSF)" means any staffed or unstaffed location for the transmission and/or reception of radio frequency signals or other personal wireless communications, including commercial mobile services, unlicensed wireless services, wireless broadband services, and common carrier wireless exchange access services as defined in the Telecommunications Act of 1996, and usually consisting of an antenna or group of antennas, transmission cables, feed lines, equipment cabinets or shelters, and may include a tower. Facilities may include new, replacement, or existing towers, replacement towers, collocation on existing towers, base station attached concealed and non-concealed antenna, dual purpose facilities, concealed towers, and non-concealed towers (monopoles, lattice and guyed), so long as those facilities are used in the provision of personal wireless services as that term is defined in the Telecommunications Act.

"Porch" means an open air room appended to the mass of a building with floor and roof.

"Power/gas substation" means a facility that regulates electric current or natural gas pressure for distribution to individual neighborhoods.

"Preservation permit" means a certificate issued by the historic zoning commission denoting approval of changes in uses, buildings or structures to be made within a historic overlay district.

"Principal building" means a building that contains the principal use located on a lot.

"Principal business purpose" means a business purpose for which any one of the following applies:

(1) At least thirty-five percent of the business's displayed merchandise consists of books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, video cassettes, compact discs, digital video discs, slides, or other visual representations, which are characterized by their emphasis upon the display of "specified sexual activities" or "specified anatomical areas";

(2) At least thirty-five percent of the wholesale value of the business's displayed merchandise consists of the foregoing enumerated items;

(3) At least thirty-five percent of the retail value of the business's displayed merchandise consists of the foregoing enumerated items;

(4) At least thirty-five percent of the business's revenues derive from the sale or rental, for any form of consideration, of the foregoing enumerated items;

(5) At least thirty-five percent of business's interior business space is used for the display, sale, or rental of the foregoing enumerated items;

(6) The business regularly features the foregoing enumerated items, and prohibits access by minors, because of age, to the premises, and advertises itself as offering "adult" or "XXX" or "X-rated" or "erotic" or "sexual" or "pornographic" material on signage visible from a public right-of-way.

"Principal pedestrian entrance" means the main point of pedestrian access to a building.

"Principal use" means a use that fulfills a primary function of an establishment, institution, household, or other entity.

"Printing and publishing" means the production and distribution of books, magazines, newspapers and other printed matter, including retail photocopying and blueprinting services, as well as record pressing and publishing, engraving and photoengraving.

"Putrescible waste" means material which is capable of undergoing the process of decomposition resulting in the formation of malodorous byproducts.

"Qualified collocation request" means collocation of PWSF on a tower or base station that creates a substantial change in the facility but is entitled to processing within ninety days under 47 U.S.C. § 332(c)(7).

"Radio/television/satellite tower" means towers and accessory buildings for transmitting and receiving radio, television, satellite and other broadcast signals, including radar surveillance.

"Recreation center" means recreational facilities such as community centers, playgrounds, parks, swimming pools and playing fields that are available to the membership of a club or the general public.

"Recycling collection center" means a drop-off facility for the temporary assemblage of small recyclable consumer items such as food and beverage containers, fabrics and paper.

"Recycling facility" means a facility, other than a facility open to the public to receive household waste and recyclable material, where any method, technique, or process is utilized to separate, process, modify, convert, treat or otherwise prepare non-putrescible waste so that component materials or substances may be used or reused or sold to third parties for such purposes. The use or reuse of a solid waste may not be used in a manner that would constitute solid waste disposal.

"Rehabilitation services" means the provision of treatment for addictive, mental or physical disabilities on either twenty-four hours a day or outpatient basis.

"Rehearsal hall" means the provision of an area for rehearsal of musical or artistic performances without the provision of spectator seating.

"Religious institution" means any structure or site used primarily for religious practices.

"Research service" means basic or applied research, or experimental study, testing or analysis in the natural sciences, including any educational uses associated with and accessory to such research.

"Residence for persons with disabilities, more than eight individuals" means a group of more than eight unrelated persons with disabilities, including two additional persons acting as support staff or guardians, living together as a single housekeeping unit. For purposes of this subsection, "persons with disabilities" includes persons with a physical or mental impairment which substantially limits one or more of such person's major life activities, a record of having such an impairment, or being regarded as having such an impairment; provided, however, such term does not include current, illegal use of or addiction to a controlled substance (as defined in section 102 of the Controlled Substances Act (21 U.S.C. 802)). For the purposes of this subsection, "physical or mental impairment" includes drug addiction (other than addiction caused by current, illegal use of a controlled substance) and alcoholism pursuant to 24 C.F.R. § 100.201. For the purposes of this subsection, "persons with disabilities" does not include persons who pose a substantial likelihood of serious harm as defined in Tennessee Code Annotated § 33-6-501, or who have been convicted of serious criminal conduct related to such disability.

"Restaurant, fast-food" means any building, room, space, or portion thereof where food is sold for consumption on-site or off-site within a short period of time, orders are made at either a walk-up or counter, payment for food is made prior to consumption, and the packaging of food is done in disposable containers.

"Restaurant, full-service" means any building, room, space or portion thereof where food is sold for consumption on-site, customers are provided an individual menu, a restaurant employee serves the customers at the same table or counter at which items are consumed, or where seating turns over at a rate of thirty minutes or more. A restaurant shall not be considered a restaurant, fast-food or restaurant, take-out solely on the basis of incidental or occasional take-out sales.

"Restaurant, take-out" means any building, room, space or portion thereof where a limited variety of food or beverages are sold principally for off-site consumption, but which may include incidental seating for on-site consumption containing no more than twenty seats. Typical uses include bakeries, candy, nut, and confectionery stores, coffee houses, ice cream and frozen dessert stores, small delicatessens and similar establishments.

"Retail" means the sale of goods and/or services at retail. For purposes of calculating required parking, retail includes "retail, general" and "retail, convenience" and "retail, shopping center.

Retail, convenience. "Convenience retail" means an establishment engaged in the retail sale or rental of frequently or recurrently needed items for household use to a limited market area, provided that the establishment does not contain more space than the maximums shown in the following table:

Type of Establishment	Maximum Size (GFA)
General food stores	15,000
Drugstores, hardware stores, apparel/ cosmetic Stores	10,000
Coffee/juice stores, bookstores, retail bakeries, videotape rental stores	5,000
Flower shops, newsstands, and other stores	3,000

Convenience food stores may include accessory gasoline sales, provided that the pump facilities are capable of serving no more than four vehicles at one time.

Retail, general. "General retail" means an establishment providing general retail sales, services or rental from the premises, of goods and/or services not specifically classified in another commercial activity type.

Retail, shopping center. "Shopping center retail" means a single building containing at least twenty-five thousand square feet and containing two or more different individual stores engaged in general retail sales or convenience retail sales.

"Reuse" means (a) the on-site use of reprocessed construction and demolition or (b) the off-site redistribution of a material which would otherwise be disposed of, for use in the same or similar form as it was produced.

"Roof line" means a horizontal line intersecting the highest point or points of a roof.

"Rooming unit" means a residential unit that contains a bed and may contain a bathroom, microwave, television, or dorm-sized refrigerator, but where there is a common kitchen and communal area for all residents within the facility. For purposes of determining density, three rooming units in a facility shall be counted as one dwelling unit.

"Rope lighting" means lighting that is primarily used as a decorative lighting fixture, featuring small light bulbs linked together and encased in a PVC jacket to create a string of lights.

"Rural bed and breakfast homestay" means a rural bed and breakfast homestay shall contain six or fewer furnished rooms for pay within a private, owner-occupied structure which is on a single lot that exceeds five acres, and is located in an agriculturally zoned district, and authorized by the board of zoning appeals, according to Section 17.16.160.

"Safety service" means the conduct of publicly owned safety and emergency services such as, but not limited to fire stations, police stations and emergency medical and ambulance service.

"Salvage" means the controlled removal of construction or demolition waste/material from a building, construction, or demolition site for the purpose of recycling, reuse, or storage for later recycling, reuse, or proper storage for future recycling or reuse.

"Satellite dish" means a specialized antenna for the reception and/or transmission of broadcast signals to and from orbiting satellites.

"Scrap operation" means the storage, processing and/or sale from the premises of used or waste material, including automotive dismantlers and recyclers, where a person, firm, association, corporation, or trust resident or nonresident, is engaged in the business and/or providing facilities for the purpose of recovering parts from automobiles and trucks, which have been wrecked or otherwise rendered inoperable as transportation vehicles with the parts recovered being for resale and further reduce used automobiles and trucks to a condition capable of salvage for their metal scrap content by scrap processors.

"Screening" means visually shielding or obscuring a structure, use or equipment from public view by a liner building, fencing, wall, or densely planted vegetation.

"Security residence" means living quarters for one family for the purpose of providing security as an accessory to a principal use.

"Self-service storage" means the lease or rent of small storage units for the purpose of storing personal property.

"Service area" means an area located at grade that is for the purpose of loading and unloading vehicles.

"Setback" means that part of a lot extending open and unobstructed from the lowest level to the sky, except for permitted obstructions, along the length of a lot line for a depth or width set forth in the bulk regulations for the district in which the lot is located. Required setbacks are also referred to as yards. See Diagram 17.04F.

The following setback types are referenced:

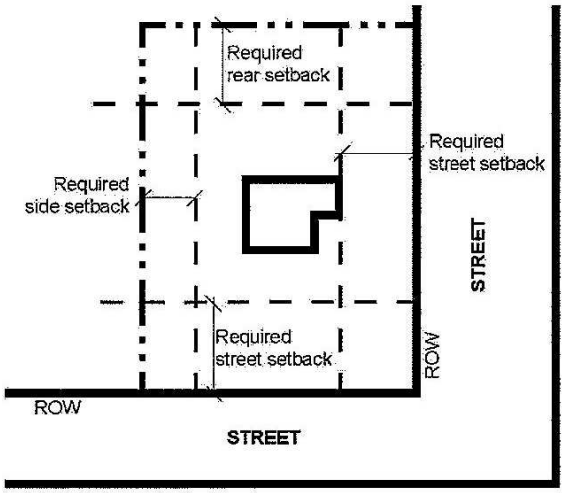
1. "Interior side setback" means a side setback that does not abut a street.

2. "Rear setback" means a setback extending for the full length of a lot line not abutting a street, on the opposite end of a lot from a front setback.

3. "Side setback" means a setback extending along a lot line from the front setback to the rear setback, or, in the case of a through lot or through corner lot, to another front setback.

4. "Street setback" means a setback extending along the full length of the lot line abutting a street.

Diagram 17.04F
SETBACK ILLUSTRATION



"Sex club" means any establishment, business, or club that allows members to engage in specified sexual activities or the exposure of specified anatomical areas, and which contains either rooms for couples or other adult-themed rooms or both for the use of members.

"Short term rental property (STRP)—Owner-occupied" means an owner-occupied residential dwelling unit containing not more than four sleeping rooms that is used and/or advertised through an online marketplace for rent for transient occupancy by guests.

"Short term rental property (STRP)—Not owner-occupied" means a residential dwelling unit that is not owner-occupied containing not more than four sleeping rooms that is used and/or advertised through an online marketplace for rent for transient occupancy by guests.

"Shrub" means a woody plant with a multiple stem capable of growing to a height of no more than fifteen feet.

"Sidewalk" means all Streetside Elements included in the Major and Collector Street Plan and Streetside Elements for local streets required by other standards of the metropolitan government located within the public right-of-way or a pedestrian easement.

"Sidewalk, On-site" means pedestrian facilities located outside of the public right-of-way.

"Sign" means any writing (including letter, work or numeral), pictorial representation (including illustration or decoration); emblem (including device, symbol or trademark); flag (including banner or pennant); inflatable structure; or any other figure of similar character, which is a structure or any part thereof, or is attached to, painted on, or in any other manner represented on a building or other structure; and is used to announce, direct attention to, or advise.

These terms regarding signs are referenced:

1. "Awning sign" means the application of words, lettering and/or logos to an awning.

2. Billboard. A "billboard" is defined as a sign that is used to advertise or inform by directing attention to a cause, event, campaign, business, profession, commodity, product, service or entertainment which is conducted, sold, distributed or offered elsewhere than upon the same premises as the billboard, or which directs attention to any brand name or trade name product which may be incidentally available on the same premises as the billboard.

3. "Building sign" means any sign attached to or supported by any building or other structure that has a purpose other than solely to support a sign. A building sign may be attached by means of projection, wall mounting or roof support subject to height restrictions.

4. "Canopy sign" means the application of words, lettering and/or logos to a canopy.

5. "Common signage plan" means a document indicating the integration of sign size, design, location or duration when more than one sign/ownership is involved on any zone lot.

6. "Display surface area" means the entire area within a single continuous perimeter enclosing the extreme limits of wording, representation, emblem, or any figure of similar character, together with any background materials, color or area defined by a border or frame, any of which forms an integral part of the display or serves to differentiate such display from the structure to which it is affixed.

7. "Ground sign" means a sign that has no attachment to any part of a building and meets one of the following criteria:

a. Mounted directly on and securely attached to a concrete slab at ground level; or

b. Mounted on and securely attached to one or more posts, columns, braces or structures other than buildings extended from ground level and anchored in the ground with a concrete foundation in compliance with the metropolitan building code.

8. "Hanging sign" means a ground sign with one vertical post and one or two arms from which a sign hangs. The sign is intended for buildings with a deep build-to zone and is placed perpendicular to the sidewalk.

9. "Informational sign" means an informational sign is for the purpose of a zone lot occupant, or occupants, to convey discreet informational items, direc-

tions or instructions for the safety, convenience and need to know for the use, or restriction of use, of a lot on a permanent basis.

10. "Landmark sign" means a sign that exemplifies the cultural, architectural, or commercial identity of Nashville and Davidson County, is iconic in its location, and contributes to the surrounding neighborhood character.

a. "Historic sign" means a landmark sign that exemplifies the cultural, architectural or commercial history of Nashville and Davidson County and was constructed more than fifty years before the date of application.

b. "Vintage sign" means a landmark sign that is iconic and culturally significant and was constructed between fifty and twenty-five years before the date of application.

c. "Replica sign" means a landmark sign that is an exact reproduction of an historic sign which no longer exists.

11. "Major sign" means a building-mounted sign indicating the name of a building and/or the primary building tenant. The sign is intended for building identification.

12. "Marquee sign" means a canopy sign that includes a section with changeable copy that relates to the principal use on the premises.

13. "Minor sign" means a sign that advertises individual tenants in a multi-tenant building. The sign may be building-mounted or projecting.

14. "Monument sign" means a permanent ground sign where the bottom of the display surface area, along its entire length, is attached to the ground or a continuous pedestal, not support poles.

15. "Multi-tenant sign" means a sign on which the names and locations of occupants in a multi-tenant building are identified along the street.

16. "On-premises sign" in the CC, CF and CS zone districts and effective January 1, 1998 in the CA, CL, SCC, SCR, ORI and MUI zone districts, except within an historic overlay district, means a sign that advertises or attracts attention to a specific event, activity, establishment, commodity, product, service or entertainment which is conducted, sold, distributed or offered on the same premises as the sign or offered elsewhere than upon the same premises as the sign, if the sign is accessory to the principal use.

"On-premises sign" in any other zone district, including property within an historic overlay district, is a sign that advertises or attracts attention to a specific event, activity, establishment, commodity, product, service or entertainment which is conducted, sold, distributed or offered on the same premises as the sign.

17. "Overall signage plan" means a plan which indicates the general location, maximum dimensions and structural types of all signs to be erected on the lot.

18. "Parking sign" means a sign indicating the location of parking facilities to both drivers and pedestrians.

19. "Portable sign" means any sign, unless otherwise permitted by this code, that is designed and constructed in such a way as to not require permanent attachment to the ground, a building, or other unmovable structure.

20. "Projection-mounted sign" means a building sign that is:

a. Attached to a wall and projects outward from the wall more than twelve inches; or

b. Suspended from any structure that constitutes a covering or shelter such as a canopy, portico or marquee. Usually, though not always, the face of a projecting sign will be perpendicular to or form a wide angle with the surface to which it is attached.

21. "Roof-mounted sign" means a building sign that is attached to or mounted on a roof in such a way that the top of the sign does not exceed the roof line.

22. "Signage" means area in square feet of the continuous perimeter of copy including any wording, numerals, emblem or representation which is used to announce, direct attention to or advertise.

23. "Sign setback line" means the spacing between a sign and a lot line or two signs.

24. Sign Structure, Permanent Ground. "Permanent ground sign structure" means a structure, including foundations, platforms, uprights, supports, frames, display surfaces, and/or other appurtenances, intended solely to support and display one or more signs and which meets the following requirements:

a. Pole or pylon sign structures are firmly anchored to the ground in compliance with the metropolitan building code standards; and

b. Ground sign structures include a concrete foundation and concrete slab platform at or near grade to which signs or other appurtenances to support signs can be securely attached.

25. "Temporary on-premises sign" means a permitted sign that announces an event, use or availability for the duration of that event, use or availability and limits the placement and removal of the sign to a limited period of days before and after the duration period.

26. "Tri-face billboard" means a non-internally illuminated billboard where the panel display face is made with triangular louvered narrow vertical panels that periodically rotate to display three different advertising messages in a predetermined sequence.

27. "Wall-mounted sign" means a building sign that conforms to the following:

a. That is attached to a wall (including parapet wall) or other structure that supports a roof, including any sign that is part of or attached to a canopy or awning and any sign attached to any side face of a marquee;

b. That does not project outward more than twelve inches from the surface to which it is attached; and

c. In which the sign face is parallel to the plane of the surface to which it is attached.

28. "Window sign" means any sign attached to or directly applied on a window or glass door; intended for viewing from the exterior.

"Single family" means one residential dwelling unit per structure.

"Single ownership" means the proprietary interest of a single landowner or person.

"Small cell facility" means a wireless service facility that either meets both of the following qualifications or is within a stealth design that is consistent with the design guidelines:

1. Each antenna is located inside an enclosure of no more than five cubic feet in volume or, in the case of an antenna that has exposed elements, the antenna and all of its exposed elements could fit within an enclosure of no more than five cubic feet, however, the maximum dimensions of the antenna shall not exceed 36" in height and 16" in diameter; and

2. Primary equipment enclosures are no larger than seventeen cubic feet in volume. The following associated equipment may be located outside of the primary equipment enclosure and, if so located, is not included in the calculation of equipment volume: Electric meter, concealment, telecommunications demarcation box, underground enclosures, back-up power systems, grounding equipment, power transfer switch, and cut-off switch.

"Small cell network" means a collection of interrelated small cell facilities designed to deliver wireless service.

"Small outdoor music event" means the provision of live acoustic music using small portable sound systems outside of permanent structures on commercially-zoned property where the performers are located within one thousand feet of any residentially-zoned property.

"Special exception (SE)" means uses that require authorization by the board of zoning appeals prior to the issuance of a zoning permit according to the provisions of Article III of Chapter 17.16 and Article VII of Chapter 17.40.

"Step-back" means a change in the vertical plane of multi-story buildings that preserves the pedestrian experience at sidewalk-level by setting the upper story building facade away from the street beyond the maximum building height allowed at the build-to-zone.

"Stoop" means a landing and its associated stair or ramp connecting a building entrance to the ground.

"Story" means a portion of a building between the surface of any floor and the surface of the floor above it, or, if there is no floor above it, the space between such floor and the ceiling above it. A basement or cellar shall not be deemed a story if the finished floor level directly above is not more than six feet above the average elevation of the adjacent finished grade. In the DTC zoning district "story" also means a level within a building by which height is measured.

"Story, half" (or "attic story") means a conditioned space that rests primarily underneath the slope of the roof, usually having dormer windows. The half story is identified by the ".5" in the description of maximum height (Example: 2.5). This space shall be considered a full story when its top wall plates, on at least two opposite exterior walls, are greater than four feet above the floor of such story. A dormer shall not occupy more than fifty percent of any roof face. The ridge of any dormer shall be at least two feet below the roof ridge, with its sidewalls inset at least two feet from the edge of the roof or the sidewalls of any other dormer and its front wall inset at least two feet from the wall below.

"Street" means a publicly maintained right-of-way, other than an alley, that affords a means of vehicular access to abutting property. The following are street, functional design type designations:

1. "Arterial street" means a street designated as either an "arterial-boulevard" or an "arterial-parkway" on the adopted Major and Collector Street Plan.

2. "Collector street" means a street designated as a "collector-avenue" on the adopted Major and Collector Street Plan.

3. "Local street" means a street with a low level of mobility that is used primarily for access to property and provides connectivity between collector and arterial streets.

4. "Minor local street" means a street that is a dead end or loop street providing service to no more than fifty single family residential lots or sixty-five multi-family units.

5. "Scenic arterial" means a street designated as either a "scenic arterial-boulevard" or a "scenic arterial-parkway" on the adopted Major and Collector Street Plan.

"Street, frontage classifications" refers to the character of the street and adjacent buildings, and is applied in conjunction with the street, functional design type designation.

1. "Street, neighborhood" means a smaller street of neighborhood-scale and character with limited connectivity within an area and little or no connectivity to the city. A neighborhood street is typically more residential than other streets within the subdistrict.

2. "Street, other" means an atypical street with limited lot access and limited pedestrian activity such as, but not limited to, interstate entrance and exit ramps and similar streets.

3. "Street, primary" means a street with significance within the neighborhood, the area, and perhaps the city and has high pedestrian and vehicular activity. Vehicular access to properties is significantly limited. In all aspects of building design, frontages, sidewalks, and open spaces, pedestrian safety, comfort, and accessibility are of highest importance.

4. "Street, secondary" means a support street. In comparison to a primary street, a secondary street has less significance within the neighborhood and the area. Vehicular access to properties is permitted and shall sufficiently accommodate pedestrian safety, comfort and accessibility.

5. "Street, tertiary" means a street of lesser importance than primary, secondary, or neighborhood streets and with little or no connectivity to the city. A tertiary street may function as "back of house" for a building with multiple street frontages.

"Street line" means a lot line abutting and coincident with a street right-of-way.

"String lighting" means a series of lights located along a coated wire.

"Structural root zone (SRZ)" means the area of soil around a tree where the minimum area of roots required to maintain the structural stability of the tree are located. The SRZ is to be determined by measuring one-half foot per each inch of tree diameter at breast height, with a minimum of six feet.

"Structure" means anything constructed above or below ground.

"Subdivision" means any subdivision of land as provided in Section 13-3-401 et seq. and Section 13-4-301 et seq., Tennessee Code Annotated.

"Substantial change" means a modification or collocation constitutes a "substantial change" of an eligible support structure if it meets any of the following criteria:

1. A telecommunications facility collocation on an existing structure within a public right-of-way increases the overall height of the structure, antenna and/or antenna array more than ten percent or ten feet, whichever is greater.

2. A telecommunications facilities collocation for towers not in a public right-of-way protrudes from the structure more than ten percent or twenty feet whichever is greater or the width of the structure at the elevation of the collocation, and for towers within a public right-of-way, protrudes from the structure more than six feet.

3. A telecommunications facility collocation on an existing structure fails to meet current building code requirements (including windloading).

4. A telecommunications facility collocation adds more than four additional equipment cabinets or one additional equipment shelter.

5. A telecommunications facility collocation requires excavation outside of existing leased or owned parcel or existing easements.

6. A telecommunications facility collocation defeats any existing concealment elements of the structure.

7. A telecommunications facility collocation fails to comply with all conditions associated with the prior approval of the structure except for modification of parameters as permitted in this section.

"Support structure" means anything constructed or erected, the use of which requires permanent location on the ground, or attachment to something having a permanent location on the ground, including alternative structures, but excluding antennas.

"Switch gear" means a high-voltage electrical device used to switch main feeder circuits and to provide fuse protection for distribution of currents to customers.

"Tank farm" means an open air facility containing aboveground large containers for the bulk storage of material in liquid, powder or pellet form.

"Tasting room" means an area within a distillery, including an artisan distillery, or a brewery, including a microbrewery, which serves and sells products produced by the distillery or brewery in association with tours of the facility.

"Telecommunications facility" means one or more antenna, tower, base station, mechanical and/or electronic equipment, conduit, cable, fiber, wire, and associated structures, enclosures, assemblages, devices and supporting elements that generate, transmit or produce a signal used for communication that is above ground and is proposed by an entity other than the Metropolitan Government, including but not limited to radio/tv/satellite and broadcast towers, telephone service, including new microwave or cellular towers, PWSF, DAS, small cell facilities and COW's. A DAS system that is completely enclosed within one building is not considered a telecommunications facility.

"Telephone service" means a facility providing telephone and telegraph services to the public, including central office exchanges, switching buildings, and microwave and cellular towers.

"Temporary festival" means the provision of rides, games, food and amusements outside of permanent structures. The use shall have a duration of no more than ten days in a month.

"Title loan" means any building, room, space or portion thereof where a business operates that makes loans in exchange for possession of the certificate of title to property or a security interest in titled property, as regulated by Title 45, Chapter 15, of the Tennessee Code Annotated.

"Tower" means any support structure built for the primary purpose of supporting any antennas and associated facilities for commercial, private, broadcast, microwave, public, public safety, licensed or unlicensed, and/or fixed or wireless services. A tower may be concealed or non-concealed. Non-concealed towers include:

Guyed. A style of tower consisting of a single truss assembly composed of sections with bracing incorporated. The sections are attached to each other, and the assembly is attached to a foundation and supported by a series of wires that are connected to anchors placed in the ground or on a building.

Lattice. A self-supporting tapered style of tower that consists of vertical and horizontal supports with multiple legs and cross bracing, and metal crossed strips or bars to support antennas.

Monopole. A style of freestanding tower consisting of a single shaft usually composed of two or more hollow sections that are in turn attached to a foundation. This type of tower is designed to support itself without the use of guy wires or other stabilization devices. These facilities are mounted to a foundation that rests on or in the ground or on a building's roof. All feed lines shall be installed within the shaft of the structure.

"Trade permit" means a permit issued by the Metropolitan Codes Department to perform electrical, plumbing, gas, low voltage, or HVAC work.

"Transient" means any person who exercises occupancy or is entitled to occupancy of any rooms, lodgings or accommodations for a period of less than thirty continuous days.

"Transmission equipment" means equipment that facilitates transmission of communication service (whether commercial, private, broadcast, microwave, public, public safety, licensed or unlicensed, fixed or wireless), including but not limited to radio transceivers, antennas, coaxial or fiber-optic cable, and regular and backup power supply.

"Transportation coordinator" means a person who is designated to conduct parking demand studies and monitor commuting patterns to ascertain and ensure that the parking supply for a land use is adequate to serve parking demand.

"Travelway" means that portion of a public right-of-way that is improved for use by self-propelled vehicles or bicycles, including paved or gravel areas and any other area intended for vehicle movement.

"Tree" means a woody, perennial plant with a single or multiple trunks capable of growing to a height of eight feet or more and includes the anatomical and structural components necessary to sustain the health of the tree, including but not limited to the bole or root flare, trunk, leader, crown, canopy, and structural roots.

Tree, canopy. "Canopy tree" means any self-supporting woody plant of a species that normally achieves an overall height at maturity of thirty feet or more.

"Tree density factor" means a number based on the basal area derived from the combination of the density of trees remaining on a site and the density of additional trees to be planted.

Tree, heritage. "Heritage tree" means any tree meeting the criteria established in 17.28.065 of this title.

Tree, historic and specimen. "Historic and Specimen tree" means any tree meeting the criteria established in Section 17.28.065 of this title.

Tree, prohibited. "Prohibited tree" means any tree which, by the nature of its fruit, root system, brittleness of wood, or susceptibility to disease, is not allowed as a replacement tree.

Tree, protected. "Protected tree" means any tree meeting the criteria established in Section 17.28.065 of this title.

Tree, replacement. "Replacement tree" means those trees required to be planted based on the difference between the required tree density factor and the actual tree density factor following all approved tree removal.

Tree, retained. "Retained tree" means a tree that is selected to be saved or preserved for purposes of being counted toward the required tree density for the property. To qualify as a retained tree, the tree shall not be listed on the most recent edition of the Tennessee Invasive Exotic Plant List and shall be in fair or better condition, with no major insect or pathological problems.

Tree, understory. "Understory tree" means any self-supporting woody plant of a species that normally achieves an overall height at maturity of fifteen to thirty feet and that can grow beneath larger canopy trees.

"Two-family" means:

1. Two attached dwelling units that share the floor of a unit with the ceiling of another unit or a common wall from grade to eave at the front façade which continues for eighty percent of the common side or twenty feet, whichever is greater; or

2. Two detached dwelling units on a single lot which are separated by at least six feet.

3. In historic zoning overlays, the manner or existence of attachment shall be determined by the metro historic zoning commission.

"Underground" means not visible from the surface of the earth.

"Unified plat of subdivision" means a property plat(s) approved by the planning commission and recorded by the register of deeds which either creates new lots or re-records existing lots for the purpose of achieving a coordinated and inter-related form of development and/or manner of operation, utilizing the plat to identify and establish by appropriate notes and legal cross-references those development or operational opportunities and/or limitations as authorized by this code and assigned to the subject lots by the owner(s) of the property.

"Use" means a function or operation that constitutes an activity occurring on the land.

"Useable open space" means public or privately held land used for active or passive recreation, including, but not limited to parks, plazas, courtyards, playing fields, trails, greenways, and golf courses.

"Utility companies" means any person, governmental body, organization, or entity of any type, and their agents, representatives, and employees, supplying electricity, natural gas, water, communications, or similar or associated services to the residential areas of Metropolitan Nashville and Davidson County.

"Utility equipment" means poles, towers, supports, wires, conductors, conduits, guys, stubs, cross arms, braces, transformers, insulators, cut-outs, switches, communication circuits, used or useful in supplying electricity, natural gas, water, communication or similar or associated services to the residential areas of Metropolitan Nashville and Davidson County.

"Vehicular rental/leasing" means the rental or leasing of automobiles, motorcycles, recreational vehicles, boats, recreational equipment, and light trucks and vans, including incidental parking and servicing of vehicles for rent or lease (e.g. rental car agencies and taxi-cab dispatch areas). No "Automobile Repair" or "Scrap Operation" activities may occur on-site and no abandoned vehicles shall be stored on the premises.

"Vehicular sales and service, limited" or "limited vehicular sales and service" means the retail or wholesale sale of motorcycles, trucks and vans, recreational vehicles, boats, or similar motorized recreational equipment, along with incidental service or maintenance such as, but not limited to boat dealers, motorcycle dealers, and recreational vehicle dealers. (See also "Automobile sales, new", "Automobile sales, used", "Automobile repair", "Vehicular rental/leasing", and "Heavy equipment sales and service.")

"Vocational school" means the offering of regularly scheduled instruction in technical, commercial or trade skills.

"Warehouse" means a facility used primarily for the bulk storage of goods and materials either for a private entity or the general public.

"Waste transfer" means a combination of structures, machinery or devices at a place or facility which receives solid waste taken from public or private collection vehicles or from individuals and which is placed in other transportation units for movement to another solid waste management facility. The facility may also provide for the sorting, processing and temporary storage of recyclable items.

"Water taxi station" means the provision of passenger loading and unloading facilities from watercraft. Ticket purchasing, restaurants and retail stores shall be permitted as accessory activities if the facility is located in a district that permits those uses.

"Wind energy facility (small)" means a wind energy facility consisting of one tower, one turbine, and having a rated capacity of not more than 100kW.

"Wind energy facility (utility)" means a wind energy facility consisting of two or more towers with turbines, or having a rated capacity of 100kW or more, and where the primary use of the facility is electrical generation to be sold to the wholesale electricity markets.

These terms regarding wind energy systems are referenced:

1. "Blade glint" means the intermittent reflection of the sun off the surface of the blades of a single or multiple wind turbine(s).

2. "Distance" means a measurement made in a straight line, without regard to intervening structures or objects, from the wind turbine's center toward the specified distance required by this title.

3. "Height" means the vertical distance from pre-development grade to the tip of the wind turbine blade at its highest point, or blade-tip height.

4. "Nacelle body" means the structure at the top of the wind turbine that is separate from the blades and comprises the rotor shaft, gearbox, and generator.

5. "Occupied building" means a residence, religious institution, hospital, school, day-care, community education facility, or library.

6. "Shadow flicker" means the effect when the blades of an operating wind turbine pass between the sun and an observer, casting a readily observable, moving shadow on the observer and his/her immediate environment

7. "Wind energy facility" means a wind turbine and all associated equipment, machinery and structures utilized to convert wind to electricity. This includes, but is not limited to, towers, transmission, storage, collection and supply equipment, substations, transformers, and service and access roads.

8. "Wind turbine" means a device that converts kinetic wind energy into rotational energy to drive an electrical generator. A wind turbine typically consists of a tower, nacelle body, and a rotor with two or more blades.

"Workforce housing" means housing that, on an annual basis, costs thirty percent or less than the estimated median household income for households earning more than sixty percent and not to exceed one hundred and twenty percent of the median household income for the applicable county based on the number of persons in the household, as established by Median Household Income in the Past 12 Months by Household Size (B19019) from the most recently available U.S. Census Bureau American Community Survey.

"Wrecker service" means the removing of a motor vehicle by towing, carrying, hauling or pushing from public or private property when such vehicle has been ordered to be impounded to a public or private impound lot. This shall not include an "automobile service" use that has a tow truck and services vehicles on-site. (See also "Automobile repair" and "Automobile service").

Zoning map, official. "Official zoning map" means a map, or series of maps and special overlays showing districts and special districts that are established under the provisions of and have been made a part of this title.

"Zoning permit" means written approval by the zoning administrator that is required before commencing any construction, reconstruction, alteration of any building or other structure or before establishing, extending or changing any use on any lot. (Ord. BL2025-1007 § 1, 2025; Amdt. A to Ord. BL2025-1006 § 1, 2025; Ord. BL2025-1006 § 1, 2025; Ord. BL2025-1005 § 1(Exh. A), 2025; Ord. BL2025-958 § 1, 2025; Ord. BL2024-687 § 1, 2025; Ord. BL2024-594 §§ 1, 2, 2025; Ord. BL2024-617 § 1, 2024; Ord. BL2024-467 § 1, 2024; Amdt. 1 to Ord. BL2024-184 § 1, 2024; Ord. BL2024-184 § 1, 2024; Ord. BL2023-120 § 1, 2024; Amdt. C to Ord. BL2022-1471 § 3, 2023; Amdt. B to Ord. BL2022-1471 § 3, 2023; Amdt. A to BL2022-1471 § 3, 2023; Ord. BL2022-1471 §§ 2, 3, 2023; Ord. BL2022-1346 §§ 1, 2, 2022; Ord. BL2022-1122 § 3, 2022; Ord. BL2022-1073 § 1, 2022; Ord. BL2019-32 § 1, 2019; Ord. BL2018-1455 § 1, 2019; Amdt. 1 to Ord. BL2018-1416 § 2, 2019; Ord. BL2018-1416 §§ 1, 2, 2019; Ord. BL2018-1279 §§ 1, 2, 2018; Ord. BL2017-903 § 1, 2017; Ord. BL2017-900 §§ I, II, 2017; Ord. BL2017-899 § 1, 2017; Ord. BL2017-859 § 1, 2017; Amdts. 7, 8 to Ord. BL2017-608 § 1, 2018; Ord. BL2017-608 § 1, 2018; Ord. BL2017-654 § 11, 2017; Ord. BL2016-493 § 4, 2017; Amdt. 1 to Ord. BL2016-492 § 2, 2017; Ord. BL2016-492 §§ 2—4, 2017; Ord. BL2016-415 § 1, 2016; Ord. BL2016-379 §§ 1, 2, 2016; Ord. BL2016-309 § 2, 2016; Amdt. 2 to Ord. BL2016-132 § 1, 2016; Amdt. 1 to Ord. BL2016-132 §§ 1, 2, 2016; Ord. BL2016-132 §§ 1, 2, 2016; Amdt. 1 to Ord. BL2016-117 §§ 1, 2, 2016; Ord. BL2016-117 §§ 1, 2, 2016; Ord. BL2015-14 § 1, 2015; Ord. BL2015-1210 § 1, 2015; Ord. BL2015-1153 § 15, 2015; Ord. BL2015-1139 §§ 1, 2, 2015; Ord. BL2015-1121 §§ 1, 11, 14, 2015; Ord. BL2015-1099 § 1, 2015; Ord. BL2014-909 § 1, 2015; Ord. BL2014-908 § 1, 2014; Ord. BL2014-770 § 1, 2014; Ord. BL2014-769 § 1, 2014; Ord. BL2014-747 § 1, 2014; Ord. BL2014-740 § 1, 2014; Ord. BL2014-739 § 1, 2014; Ord. BL2014-684 § 1, 2014; Ord. BL2014-651 § 1, 2014; Ord. BL2012-249 § 1, 2012; Ord. BL2012-204 § 1, 2012; Ord. BL2012-182 § 1, 2012; Ord. BL2012-158 § 1, 2012; Ord. BL2011-47 § 2, 2012; Ord. BL2011-922 § 1, 2011; Ord. BL2011-900 § 1, 2011; Ord. BL2011-898 § 1, 2011; Ord. BL2011-897 §§ 1—4, 2011; Ord. BL2010-798 § 1, 2011; Ord. BL2010-635 § 1, 2010; Ord. B2009-586 § 1(Exh. A, § 3), 2010; Amdt. 1 to Ord. BL2009-538 § 3, 2009; Ord. BL2009-538 § 3, 2009; Amdt. 1 to Ord. BL2009-537 § 1, 2009; Ord. BL2009-537 § 1, 2009; Amdt. 1 to Ord. BL2009-535 §§ 1, 2, 2009; Ord. BL2009-535 §§ 1, 2, 2009; Ord. BL2009-479 § 1, 2009; Ord. BL2009-478 §§ 1, 2, 2009; Ord. BL2009-477 § 1, 2009; Ord. BL2009-416 § 1, 2009; Ord. BL2008-365 § 1, 2009; Amdt. 3 to Ord. BL2008-299 § 1, 2008; Ord. BL2008-299 § 1, 2008; Ord. BL2008-169 § 1, 2008; Amdt. 1 to Ord. BL2008-282 § 1, 2008; Ord. BL2008-282 § 1, 2008; Ord. BL2008-167 § 1, 2008; Ord. BL2008-151 § 1, 2008; Amdts. 1, 2 to Ord. BL2008-115 § 1, 2008; Ord. BL2008-115 § 1, 2008; Ord. BL2007-1531 § 1, 2007; Amdt. 1 to Ord. BL2006-1283 § 1, 2007; Ord. BL2006-1283 § 1, 2007; Ord. BL2006-1171 § 1, 2006; Ord. BL2006-1087 § 1, 2006; Ord. BL2006-973 § 1, 2006; Amdt. 1 to Ord. BL2006-972, 2006; Ord. BL2006-972 § 1, 2006; Ord. BL2006-971 § 1, 2006; Ord. BL2005-630 § 1, 2005; Ord. BL2005-628 § 1, 2005; Ord. BL2004-432 § 1, 2005; Ord. BL2004-221 § 1 (part), 2004; Ord. BL2004-156 § 1 (part), 2004; Amdt. 1 with Ord. BL2002-1273 § 5, 2003; Amdt. 1, 2 with Ord. BL2002-1171 § 5, 2002; Ord. 2002-1009 § 1 (part),

2002; Ord. BL2001-674 § 1 (part), 2001; Ord. BL2000-478 § 1, 2000; Ord. BL2000-364 § 1 (part), 2000; Ord. BL2000-244 § 1, 2000; Ord. BL99-117 § 1 (part), 2000; Ord. 99-1754 §§ 1—3, 1999; Ord. 99-1644 § 1 (part), 1999; Ord. 99-1642 § 1 (part), 1999; Amdt. 1 to Ord. 98-1321 § 1 (part), 8/7/98; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Amended during 2-98 supplement; Ord. 96-555 § 1.6, 1997)

Chapter 17.08

ZONING DISTRICTS AND LAND USES

Sections:

17.08.010	**Zoning districts established.**
17.08.020	**Zoning districts described.**
17.08.030	**District land use tables.**

17.08.010 Zoning districts established.

Purpose and Intent. In order to implement the land use policies of the general plan, the following districts are established by this Code. The zoning districts may be referenced in this Zoning Code as follows:

A. Agricultural Districts: AG, AR2a.

B. Residential Districts:

1. Single-Family Districts:

a. RS80 (80,000 square foot lot).
b. RS40 (40,000 square foot lot).
c. RS30 (30,000 square foot lot).
d. RS20 (20,000 square foot lot).
e. RS15 (15,000 square foot lot).
f. RS10 (10,000 square foot lot).
g. RS7.5 (7,500 square foot lot).
h. RS7.5-A (7,500 square foot lot).
i. RS5 (5,000 square foot lot).
j. RS5-A (5,000 square foot lot).
k. RS3.75 (3,750 square foot lot).
l. RS3.75-A (3,750 square foot lot).

2. One and Two-Family Districts:

a. R80 (80,000 square foot lot).
b. R40 (40,000 square foot lot).
c. R30 (30,000 square foot lot).
d. R20 (20,000 square foot lot).
e. R15 (15,000 square foot lot).
f. R10 (10,000 square foot lot).
g. R8 (8,000 square foot lot).
h. R8-A (8,000 square foot lot).
i. R6 (6,000 square foot lot).
j. R6-A (6,000 square foot lot).

3. Multi-Family Districts:

a. RM2 (2 units an acre).
b. RM2-NS (2 units an acre).
c. RM4 (4 units an acre).
d. RM4-NS (4 units an acre).
e. RM6 (6 units an acre).
f. RM6-NS (6 units an acre).
g. RM9 (9 units an acre).
h. RM9-A (9 units an acre).
i. RM9-NS (9 units an acre).
j. RM9-A-NS (9 units an acre).
k. RM15 (15 units an acre).
l. RM15-A (15 units an acre).
m. RM15-NS (15 units an acre).
n. RM15-A-NS (15 units an acre).
o. RM20 (20 units an acre).
p. RM20-A (20 units an acre).
q. RM20-NS (20 units an acre).
r. RM20-A-NS (20 units an acre).
s. RM40 (40 units an acre).
t. RM40-A (40 units an acre).
u. RM40-NS (40 units an acre).
v. RM40-A-NS (40 units an acre).
w. RM60 (60 units an acre).
x. RM60-A (60 units an acre).
y. RM60-NS (60 units an acre).
z. RM60-A-NS (60 units an acre).
aa. RM80-A (80 units an acre).
bb. RM80-A-NS (80 units an acre).
cc. RM100-A (100 units an acre).
dd. RM100-A-NS (100 units an acre).

4. Design-Based Multi-Family Districts:

a. RN1 (houses, townhouses).
b. RN2 (houses, townhouses).
c. RL1 (houses, townhouses, small apartment buildings).
d. RL2 (houses, townhouses, small apartment buildings).
e. RL3 (houses, townhouses, small apartment buildings).

5. Mobile Home Park District: MHP.

C. Specific Plan District: SP.

D. Mixed-Use Districts:

1. MUN Mixed-Use Neighborhood.
2. MUN-A Mixed-Use Neighborhood Alternative.
3. MUN-NS Mixed-Use Neighborhood No STRP.
4. MUN-A-NS Mixed-Use Neighborhood Alternative No STRP.
5. MUL Mixed-Use Limited.
6. MUL-A Mixed-Use Limited Alternative.
7. MUL-NS Mixed-Use Limited No STRP.
8. MUL-A-NS Mixed-Use Limited Alternative No STRP.
9. MUG Mixed-Use General.
10. MUG-A Mixed-Use General Alternative
11. MUG-NS Mixed-Use General No STRP.
12. MUG-A-NS Mixed-Use General Alternative No STRP.
13. MUI Mixed-Use Intensive
14. MUI-A Mixed-Use Intensive Alternative
15. MUI-NS Mixed-Use Intensive No STRP.
16. MUI-A-NS Mixed-Use Intensive Alternative No STRP.

E. Office Districts:

1. OR20 Office/Residential (20 units an acre).

2. OR20-A Office/Residential Alternative (20 units an acre).

3. OR20-NS Office/Residential No STRP (20 units an acre).

4. OR20-A-NS Office/Residential Alternative No STRP (20 units an acre).

5. OR40 Office/Residential (40 units an acre).

6. OR40-A Office-Residential Alternative (40 units an acre).

7. OR40-NS Office/Residential No STRP (40 units an acre).

8. OR40-A-NS Office/Residential Alternative No STRP (40 units an acre).

9. ON Office Neighborhood.

10. OL Office Limited.

11. OG Office General.

12. OG-NS Office General No STRP.

13. ORI Office/Residential Intensive.

14. ORI-A Office/Residential Intensive Alternative.

15. ORI-NS Office/Residential Intensive No STRP.

16. ORI-A-NS Office/Residential Intensive Alternative No STRP.

F. Commercial Districts:

1. CN Commercial Neighborhood.

2. CN-A Commercial Neighborhood Alternative.

3. CN-NS Commercial Neighborhood No STRP.

4. CN-A-NS Commercial Neighborhood Alternative No STRP.

5. CL Commercial Limited.

6. CL-A Commercial Limited Alternative.

7. CL-NS Commercial Limited No STRP.

8. CL-A-NS Commercial Limited Alternative No STRP.

9. CS Commercial Service.

10. CS-A Commercial Service Alternative.

11. CS-NS Commercial Service No STRP.

12. CS-A-NS Commercial Service Alternative No STRP.

13. CA Commercial Attraction.

14. CA-NS Commercial Attraction No STRP.

15. CF Commercial Core Frame.

16. CF-NS Commercial Core Frame No STRP.

G. DTC Downtown Code.

H. Shopping Center Districts:

1. SCN Shopping Center Neighborhood.

2. SCN-NS Shopping Center Neighborhood No STRP.

3. SCC Shopping Center Community.

4. SCC-NS Shopping Center Community No STRP.

5. SCR Shopping Center Regional.

6. SCR-NS Shopping Center Regional No STRP.

I. Industrial Districts:

1. IWD Industrial Warehousing/Distribution.

2. IR Industrial Restrictive.

3. IG Industrial General. (Ord. BL2025-1005 § 1(Exh. A), 2025; Ord. BL2019-111 § 1(Exh. A, §§ 1, 2), 2020; Ord. BL2015-1153 §§ 1, 6, 7, 2015; Ord. BL2011-898 § 2, 2011; Ord. BL2009-586 § 1(Exh. A, §§ 4, 5), 2010; Ord. BL2005-762 § 1, 2005; § 1(2) of Amdt. 1 with Ord. 96-555 § 2.1, 1997)

17.08.020 Zoning districts described.

A. Agricultural Districts. The AG and AR2a districts are intended to implement the natural conservation or interim nonurban land use policies of the general plan. Natural conservation policy is applied to those areas of the county which are unsuitable for urban scale development due to severe environmental constraints. Interim non-urban policy is applied to those areas that are not intended to urbanize within the planning period of the general plan. Furthermore, some areas of very steep topography, potentially unstable soils or a propensity to flood are intolerant of development of significant intensity and are appropriate for agricultural zoning.

The AG and AR2a districts are designed for uses that generally occur in rural rather than urban areas. These districts permit very low density residential development generally on unsubdivided tracts of land where public sanitary sewer service and public water supply are least practical. Because of their rural character, these districts will better accommodate some of the more impactive special exception uses that must be located within the county. By application of effective locational and operational standards, it is the intent of this title to minimize the impacts of such uses on residential home sites scattered throughout these districts.

B. Residential Districts. The residential districts allow a range of densities from very low (less than one unit per acre) to as high as sixty units per acre. These districts offer a diversity of housing types (including single-family, two-family and multifamily developments) throughout all density ranges established by the general plan.

Residential districts are to be applied in a manner consistent with the general plan. Residential districts should be applied according to the compatibility of the associated density with the topographic and soil conditions that prevail in the area, or when so recommended by the general plan, the prevailing development pattern of the area.

Residential districts also permit a limited range of compatible and supportive community-related uses that typically desire to locate within a residential setting. As a general rule, progressively higher density districts

within each residential policy category of the general plan should be located along higher classifications of street and in closer proximity to mass transit corridors, retail services or employment opportunities.

Although it is intended that development in residential districts be served with sanitary sewers, some low-density districts may be appropriate in nonsewered areas of the county if topographic and soil conditions are suitable for individual sewage disposal fields. Except for low-density districts, it is the intent of this code that sufficient urban services and facilities, including sanitary sewers, be available to or provided concurrent with development.

1. Single-Family (RS and RS-A) Districts. Intended for single-family residential development at a variety of densities, these districts may be applied to preserve the character of developed residential areas that are predominately single-family in nature and recommended to remain so by the general plan. These districts also may be applied to establish single-family character in developing areas at densities recommended by the general plan.

a. RS80, RS40, RS30 Districts. Designed for low intensity single-family development, these districts are appropriate for implementing the residential low density policies of the general plan. These districts may also be appropriate within selected areas of natural conservation policy that are environmentally suitable and can be provided necessary support services.

b. RS20, RS15, and RS10 Districts. Designed for relatively low to moderate intensity single-family development, these districts are appropriate for implementing the residential low-medium policies of the general plan. These districts may also be appropriate within selected areas of natural conservation policy, with urban services. The RS20 and RS15 districts may be applied along edges of areas classified within residential low density policy that have suitable physical characteristics and good street access.

c. RS7.5, RS7.5-A, RS5, RS5-A, RS3.75 and RS3.75-A Districts. Designed for higher intensity single-family development, these districts are appropriate for implementing the residential medium density policies of the general plan. As a general rule, these districts should have good access to either arterial or collector streets with the RS3.75 and RS3.75-A districts located in proximity to mass transit service.

2. One and Two-Family (R and R-A) Districts. The R and R-A districts are intended either for established residential subdivisions where the pattern of development contains both one-and two-family structures and where maintaining a mixture of housing types is desirable or for the development of new general plan.

a. R80 and R40 Districts. Intended for low intensity one-and two-family development, these districts are appropriate for implementing the residential low density polices of the general plan. These districts may also be appropriate within selected areas of natural conservation policy that are environmentally suitable and can be provided necessary support services. The R40 district also may be appropriate for selected areas policied for low-medium density development.

b. R30 and R20 Districts. Intended for low to moderate intensity one-family and two-family development, these districts are appropriate for implementing the residential low-medium density policies of the general plan. These districts also may be appropriate within those areas of natural conservation policy that are environmentally suitable and have urban services.

c. R15, R10, R8 and R8-A Districts. Intended for medium intensity one-family and two-family development, these districts are appropriate for implementing the residential medium density policies of the general plan. The R8 and R8-A districts also may be applied to areas policed for medium-high density residential development. Generally, these districts should have good access to either arterial or collector streets.

d. R6 and R6-A Districts. Intended to provide for higher intensity one-family and two-family development, this district is appropriate for implementing the residential medium or medium-high density policies of the general plan. This district should have good access to arterial streets with preference given to locations with mass transit service.

3. Multifamily (RM) Districts. The RM districts are designed for a range of low to very high intensity residential development characterized by multi-family structures. The lower density districts are appropriate for tracts of land encumbered by severe environmental constraints. Districts at the higher end of the density range for each density category of the general plan are intended to be placed on higher classifications of streets and in closer proximity to mass transit corridors, retail services, or employment opportunities. High density districts also may be appropriate in certain nonresidential policy areas where residential development would implement the general plan. Owners are encouraged to plan and develop multifamily complexes capitalizing on the more flexible design opportunities of Article V of Chapter 17.40.

a. RM2, RM2-NS, RM4, and RM4-NS Districts. These districts are designed primarily for low intensity multi-family structures of one, two or three stories, and

are appropriate for implementing the residential low-medium density policies of the general plan. These districts also may be employed within selected areas of natural conservation policy that are environmentally suitable and have urban services. The RM4 district may be used in areas policied for medium density residential development. RM2-NS and RM4-NS are designed to allow the same standards and uses of the RM2 and RM4 districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

b. RM6, RM6-NS, RM9, RM9-NS, RM9-A, and RM9-A-NS Districts. Designed primarily for low to medium intensity multifamily development of two-story or three-story structures, these districts are appropriate for areas designated in the general plan to have low to moderate intensity residential development to meet the goals of preservation of open space or environmental features while creating opportunities walkable communities with housing choice and the ability to support transit. The RM9 or RM9-A district also may be appropriate for areas policied for lower intensity office and mixed-use development, or along mixed-use corridors. Generally, these districts should have good access to either arterial or collector streets. RM9-A is designed to create walkable neighborhoods through the use of appropriate building placement and bulk standards and is an alternative to a zoning district that requires a site plan. RM6-NS, RM9-NS, and RM9-A-NS are designed to allow the same standards and uses of the RM6, RM9, and RM9-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

c. RM15, RM15-NS, RM15-A, RM15-A-NS, RM20, RM20-NS, RM20-A, and RM20-A-NS Districts. Designed for moderately high intensity multifamily structures, these districts are appropriate for areas designated in the general plan to have more intense residential development to meet the policy goals of encouraging transit and walkable communities, preserving open space and environmental features and providing a mix of housing types. These districts may also be used in areas envisioned to evolve from solely commercial to more mixed-use development along primary corridors and in mixed-use centers. These districts should have good access to arterial streets and public transportation service. RM15-A and RM20-A are designed to create walkable neighborhoods through the use of appropriate building placement and bulk standards and as an alternative to a zoning district that requires a site plan. RM15-NS, RM15-A-NS, RM20-NS, and RM20-A-NS are designed to allow the same standards and uses of the RM15, RM15-A, RM20, and RM20-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

d. RM40, RM40-NS, RM40-A, RM40-A-NS, RM60, RM60-NS, RM60-A, and RM60-A-NS Districts. These districts are designed for high intensity multifamily development, typically characterized by mid- and high-rise structures and structured parking. These districts are appropriate for areas designated in the general plan to have residential development at moderate to high intensities, and along to primary corridors to meet the policy goals of creating transit-oriented communities and diversity of housing choice. These districts may also be appropriate as a transition between more intense mixed-use centers and surrounding neighborhoods. These districts should have good access to arterial streets and public transportation service. RM40-A and RM60-A are designed to create walkable neighborhoods through the use of appropriate building placement and bulk standards and as an alternative to a zoning district that requires a site plan. RM40-NS, RM40-A-NS, RM60-NS, and RM60-A-NS are designed to allow the same standards and uses of the RM40, RM40-A, RM60, and RM60-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

e. RM80-A, RM80-A-NS, RM100-A, and RM100-A-NS Districts. These districts are designed for high intensity residential structures, typically characterized by mid- and high-rise structures and structured parking. These districts are appropriate for implementing strictly residential policies of the general plan in areas characterized by the highest levels of accessibility, mass transit opportunities and essential support services. RM80-A and RM100-A are designed to create walkable neighborhoods through the use of appropriate building placement and bulk standards and as an alternative to a zoning district that requires a site plan. RM80-A-NS, and RM100-A-NS are designed to allow the same standards and uses of the RM80-A and RM100-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

4. Design-Based Multi-Family Districts.

a. RN1 and RN2 Districts. Intended for residential development, generally in the form of houses or townhouses, with private or shared open space. These districts are appropriate for providing lower levels of density at strategic locations in urban and suburban areas-such as in transition zones near corridors, close to

community amenities like parks and schools, or in areas with good access to arterial streets. Preference is given to locations with mass transit service.

b. RL1, RL2 and RL3 Districts. Intended for residential development, generally in the form of houses, townhouses, or small apartment buildings, with private or shared open space. These districts are appropriate for providing moderate levels of density at strategic locations close to transit corridors.

5. Mobile Home Park (MHP) District. Designed for mobile home parks, this district may be used to implement the residential medium density policies of the general plan. This district should have good access to collector streets, preferably with access to public transportation service.

C. SP, Specific Plan District. The SP District is intended to implement the context sensitive development and land use compatibility provisions of the general plan for all land use policies. The district shall be used to promote site specific development in the location, integration, and arrangement of land uses, buildings, structures, utilities, access, transit, parking and streets. A site specific plan shall establish specific limitations and requirements, including any not addressed by this title, so as to respect the unique character and/or charm of abutting neighborhoods and larger community in which the property is located. A specific plan (SP) district may be applied to any property, or within any overlay district established by Chapter 17.36.

D. Mixed-Use Districts. The purpose of all mixed-use districts is to provide for and encourage a mix of compatible land uses that provide opportunities to live, work and shop within compact areas. Included among the common goals for these districts is the efficient use of land capitalizing on a high level of services, reduced reliance on the automobile with enhanced usage of mass transit, strong pedestrian relationships, and creative opportunities for the economical preservation and adaptive reuse of existing structures, most notably those which contribute to the historic resources of the community. A mixture of residential, office, personal service and retail shopping opportunities is encouraged within all mixed-use districts with individual components complimenting and reinforcing other uses within the district. Owners are encouraged to plan and develop mixed-use projects capitalizing on the more flexible design opportunities offered by Article V of Chapter 17.40.

To effectively implement the mixed use policies of the general plan, a variety of mixed-use districts are provided that offer a range of permitted uses and intensities of development. The lowest intensity districts encourage development at intensities commensurate with nearby residential areas and local shopping services. The higher intensity mixed-use districts, being more permissive in the allowable intensity of development and the range of nonresidential uses, are intended to be located in areas characterized by excellent mass transit opportunities and high levels of support services.

1. MUN, Mixed-Use Neighborhood District. MUN-NS, Mixed-Use Neighborhood District No STRP, MUN-A, Mixed-Use Neighborhood District Alternative, and Mixed-Use Neighborhood District Alternative No STRP. Designed to implement the lower intensity mixed-use policies of the general plan, this district also may be used as an alternative to commercial zoning along prominent streets, or to promote the preservation and adaptive reuse of existing buildings that contribute to the historical or architectural character of an area. Bulk standards are designed to maintain a residential-scale of development. At a minimum, these districts should have good access to collector streets and public transportation service. MUN-A is designed to create walkable neighborhoods through the use of appropriate building placement and bulk standards and is an alternative to a zoning district that requires a site plan. MUN-NS, and MUN-A-NS are designed to allow the same standards and uses of the MUN and MUN-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

2. MUL, Mixed-Use Limited District, MUL-NS, Mixed Use Limited District No STRP, MUL-A, Mixed-Use Limited District Alternative, and MUL-A-NS, Mixed-Use Limited District Alternative No STRP. The MUL and MUL-A districts are intended to implement the moderate intensity mixed-use policies of the general plan. These districts also may be used in areas policied for concentrations of mixed commercial uses and for existing areas of commercial arterial development that are located in the vicinity of major intersections. The bulk standards permitted by this district, along with the range of allowable uses, are designed to promote the preservation and adaptive reuse of larger structures that contribute to the historical or architectural character of an area. These districts should be applied to areas that have good access to collector or arterial streets and public transportation service. MUL-A is designed to create walkable neighborhoods through the use of appropriate building placement and bulk standards and is an alternative to a zoning district that requires a site plan. MUL-NS, and MUL-A-NS are designed to allow the same standards and uses of the MUL and MUL-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

3. MUG, Mixed-Use General District, MUG-NS, Mixed-Use General District No STRP, MUG-A, Mixed-Use General District Alternative, MUG-A-NS, Mixed-Use General District Alternative No STRP. The MUG and MUG-A districts are intended to implement the moderately high intensity mixed-use policies of the general plan, being appropriate near major concentrations of employment, commercial or institutional uses. These districts also may be used near the central business district, within regional activity centers, or in areas otherwise policied for concentrations of mixed commercial development with high levels of accessibility, including public transit service. The bulk regulations are designed to encourage consolidation of land and large scale development on or near arterial streets. MUG-A is designed to create walkable neighborhoods through the use of appropriate building placement and bulk standards and is an alternative to a zoning district that requires a site plan. MUG-NS, and MUG-A-NS are designed to allow the same standards and uses of the MUG and MUG-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

4. MUI, Mixed-Use Intensive District, Mixed-Use Intensive District No STRP, MUI-A, Mixed-Use Intensive District Alternative, Mixed-Use Intensive District Alternative No STRP. The MUI and MUI-A districts permit a mixture of high intensity residential, office and compatible commercial uses in areas characterized by the highest levels of accessibility, mass transit opportunities and essential support services. The bulk standards for this district permit large scale buildings, and include incentives to locate off-street parking within structures. It is intended that this district be applied to areas near downtown in a manner consistent with the general plan and other adopted redevelopment plans, to selected segments of major traffic arteries extending from the downtown core area, or for selected portions of activity centers designated by the general plan. MUI-A is designed to create walkable neighborhoods through the use of appropriate building placement and bulk standards and is an alternative to a zoning district that requires a site plan. MUI-NS, and MUI-A-NS are designed to allow the same standards and uses of the MUI and MUI-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

E. Office Districts. These districts are intended for office development at various scales and levels of intensity, ranging from low intensity structures providing neighborhood services immediately adjacent to residential areas to structures of moderately high bulk located along major street corridors. When conventional methods of buffering would be ineffective, low intensity office districts may be used as a land use transition separating a residential area from more intrusive commercial (or industrial) zoning, provided there is a clear market demand for additional office use opportunities.

1. OR20, Office/Residential District, OR20-NS, Office/Residential District No STRP, OR20-A, Office/Residential District Alternative, OR20-A-NS, Office/Residential District Alternative No STRP. The OR20 and OR20-A districts are designed for a mixture of compatible office and multifamily residential use at medium-high density levels of intensity. These districts are encouraged to locate in areas with good vehicular accessibility, preferably along collector or arterial streets, with access to public transportation services. OR20-A is designed to create walkable neighborhoods through the use of appropriate building placement and bulk standards and is an alternative to a zoning district that requires a site plan. OR20-NS, and OR20-A-NS are designed to allow the same standards and uses of the OR20 and OR20-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

2. OR40, Office/Residential District, OR40-NS, Office/Residential District No STRP, OR40-A, Office/Residential District Alternative, and OR40-A-NS, Office/Residential District Alternative No STRP. The OR40 and OR40-A districts are designed for a mixture of office and multi-family uses at high density levels of intensity. These districts are encouraged to locate in areas characterized by high levels of accessibility, preferably along arterial streets, with access to public transportation services. OR40-A is designed to create walkable neighborhoods through the use of appropriate building placement and bulk standards and is an alternative to a zoning district that requires a site plan. OR40-NS, and OR40-A-NS are designed to allow the same standards and uses of the OR40 and OR40-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

3. ON, Office Neighborhood District. The ON district is designed for low intensity office development, the ON district is appropriate for implementing the general plan's transitional office policies where the application of physical buffers would be ineffective or not feasible. Since this district often abuts residential areas, permitted uses and the associated bulk standards are limited accordingly.

4. OL, Office Limited District. The OL district is designed for moderate intensity office development, being appropriate for areas where concentration of office and /or mixed commercial areas are intended. If warranted, this district may be employed as a land use transition between higher density residential areas and noncompatible commercial or industrial uses.

5. OG, Office General District and OG-NS, Office General District No STRP. The OG district is designed for moderately high intensity office development and may be appropriate for use within regional activity centers, or areas policied for concentrations of office and commercial uses. The OG district should be served by an arterial street with mass transportation service. OG-NS is designed to allow the same standards and uses of the OG with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

6. ORI, Office/Residential Intensive District, ORI-NS, Office/Residential Intensive District No STRP, ORI-A, Office Residential Intensive District Alternative, ORI-A-NS, Office/Residential Intensive District Alternative No STRP. The ORI district is designed to provide adequate and suitable space in appropriate locations for high intensity office uses mutually compatible with high-density residential uses. A selective list of retail trade, business service and personal care service uses are permitted if the principal purpose is to serve the recurring needs of the occupants or employees of other permitted uses in these districts. These districts are appropriately located between districts characterized by less intense residential and office development and areas of more intensive commercial uses, or they are extensions along major traffic arteries from areas used for more intensive commercial purposes. ORI-A is designed to create walkable neighborhoods through the use of appropriate building placement and bulk standards and is an alternative to a zoning district that requires a site plan. ORI-NS and ORI-A-NS are designed to allow the same standards and uses of the ORI and ORI-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

F. Commercial Districts. Commercial districts are designed for establishments engaged in a variety of consumer sales and service uses, professional and business services, and recreational uses. Freestanding structures are common within these commercial districts, with most businesses desiring to be oriented toward major streets and thoroughfares.

1. CN, Commercial Neighborhood District, CN-NS, Commercial Neighborhood District No STRP, CN-A, Commercial Neighborhood District Alternative, CN-A-NS, Commercial Neighborhood District Alternative No STRP. The CN and CN-A districts will implement the local convenience and neighborhood retail policies of the general plan. These districts are designed to provide for the recurring shopping and personal service needs of nearby residential areas. The range of permitted uses is limited to those which are generally patronized on a frequent basis by neighborhood residents. The bulk and buffering standards are intended to insure good compatibility between the commercial uses and adjacent residential properties. CN-NS and CN-A-NS are designed to allow the same standards and uses of the CN and CN-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

2. CL, Commercial Limited District, CL-NS, Commercial Limited District No STRP, CL-A, Commercial Limited District Alternative, CL-A-NS, Commercial Limited District Alternative No STRP. The CL and CL-A districts are designed to provide for a limited range of commercial uses primarily concerned with retail trade and consumer services, general and fast food restaurants, financial institutions, administrative and consulting offices. The uses in this district serve a moderately wide market area, and therefore ease of automobile access is requisite. CL-NS and CL-A-NS are designed to allow the same standards and uses of the CL and CL-A districts with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

3. CS, Commercial Service District, CS-NS, Commercial Service District No STRP, CS-A, Commercial Service District Alternative, CS-A-NS, Commercial Service District Alternative No STRP. The CS and CS-A districts are intended to provide opportunities for a diverse range of commercial uses that include retail trade and consumer services, automobile sales and repair, small scale custom assembly, restaurants, entertainment and amusement establishments, financial, consulting and administrative services.

Business establishments in the CS and CS-A districts often serve a wide market area, and ease of automobile access is requisite. However, it is not intended that this district permit uses which generate truck traffic other than the stocking of products. Because of the diverse nature of uses found in these districts, bulk and buffering standards are designed to protect neighboring areas. CS-NS and CS-A-NS are designed to allow the same standards and uses of the CS and CS-A districts with the

exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

4. CA, Commercial Attraction District and CA-NS, Commercial Attraction District No STRP. The CA district provides a diverse range of amusement and recreational uses in association with overnight accommodations and a variety of retail and support services typically affiliated with the tourist industry. Bulk and parking standards are designed to reflect the high traffic generation rates commonly associated with uses found in this district. The CA district may be appropriate for selected areas policied for a regional activity center, or for concentrations of mixed commercial development. This district also may have limited application within super community scale retail concentrations, and in the vicinity of major intersections within existing arterial commercial areas. CA-NS is designed to allow the same standards and uses of the CA district with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

5. CF, Core Frame District and CF, Core Frame District, No STRP. The CF district is intended to implement the general plan's central business district land use policies for support services. The district is designed primarily for a diverse variety of business service functions along with retail trade and consumer service establishments and large parking structures that require locations in proximity to the central business district. CF-NS is designed to allow the same standards and uses of the CF district with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

G. DTC, Downtown Code District. The DTC district is designed for a broad range of residential and non-residential activities associated with an economically healthy, socially vibrant, and sustainable Downtown. Included among the common goals for the DTC district is the efficient use of land capitalizing on a high level of services, reduced reliance on the automobile with enhanced usage of mass transit, and the creation of a vibrant and safe pedestrian streetscape. The DTC district is intended to implement the policies of the general plan.

The purpose of the DTC district is to provide for and encourage a mix of compatible land uses that provide opportunities to live, work and shop within the neighborhoods of Downtown. In order to create a more sustainable Downtown, the DTC emphasizes regulating the height, bulk and location of a building and the context of the building in relationship to its surroundings or other nearby buildings.

H. Shopping Center Districts. Shopping center districts provide retail shopping opportunities within developments that are encouraged to function as planned centers. Designed to implement specific retail and mixed use policies of the general plan, the range of uses and scale are established in accordance with defined market objectives and locational criteria. Property owners are encouraged to plan and develop shopping centers capitalizing on the more flexible design opportunities offered by Article V of Chapter 17.40.

1. SCN, Shopping Center Neighborhood District and SCN-NS, Shopping Center Neighborhood District No Short Term Rental. The SCN district will implement the neighborhood retail polices of the general plan, being designed to provide sufficient space in planned development for local retail and service trades catering specifically to the recurring shopping needs of nearby residences. The range of permitted uses and restrictive bulk standards are reflective of the limited market base served by this district and its close proximity to residential areas. Guided by locational policies of the general plan, appropriate locations for this district will be at selected intersections of collector or arterial streets that are centrally located within the intended market area. SCN-NS is designed to allow the same standards and uses of the CA district with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

2. SCC, Shopping Center Community District and SCC-NS. Shopping Center Community District No STRP. The SCC district will implement the community and super community retail policies of the general plan. The SCC district is designed for retail and service trades catering to a community-scale market of approximately thirty-five thousand to one hundred thousand people with the range of permitted uses and bulk standards reflective of a community-scale market base. The SCC district is to be applied in a compact manner at major street intersections, centrally located within the intended market area, with preference given to arterial intersections in which both streets have at least four travel lanes. SCC-NS is designed to allow the same standards and uses of the SCC district with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

3. SCR, Shopping Center Regional District and SCR-NS, Shopping Center Regional District No STRP. The SCR district will implement the super community and regional activity center policies of the general plan. This district is designed for retail and service trades catering to a regional market area, with bulk standards and a broad range of permitted uses supporting the

development of shopping malls with large specialized retail anchors. Accessibility to and circulation within SCR districts is of particular importance due to the anticipated intensity of development and the relatively high rates of traffic generated by certain uses within a center. Preferred locations are at intersections of six-lane streets or at the interchange of a freeway and a four-lane (or greater) arterial street. This district should be served by a variety of public transit services. SCR-NS is designed to allow the same standards and uses of the SCR district with the exception of prohibiting Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses from the districts.

I. Industrial Districts. The industrial districts will implement the various industrial policy objectives of the general plan. The range of permitted uses, bulk requirements and operational standards reflect the intended purpose of the respective district.

1. IWD, Industrial Warehousing/Distribution District. The IWD district implements those industrial policies of the general plan that provide opportunities for wholesaling, warehousing and bulk distribution uses. This district also may be used to implement major transportation policies of the general plan. By their nature, the principal uses of this district require relatively flat, large acreage tracts of land and may generate large volumes of heavy truck traffic, necessitating very good access to major arterial streets and the interstate system. Some businesses also may require direct rail or river access.

2. IR, Industrial Restrictive District. The IR district implements those industrial policies of the general plan that provide adequate opportunities for a wide range of light industrial uses at a small to moderate scale. Uses most suitable in this district are those which operate within completely enclosed buildings with limited outdoor storage. Potential impacts on abutting properties are minimized by the light industrial nature of the uses permitted in this district and high operational standards. Uses within this district should have a high level of access to the major street network.

3. IG, Industrial General District. The IG district implements those industrial policies of the general plan which provide opportunities for intensive manufacturing uses that are essential for the economic viability of the metropolitan area. Industrial uses associated with this district often require large, relatively flat sites with good access to the regional highway system, the Cumberland River or a rail line. Due to these special locational requirements, the integrity of this district is protected by a minimum lot size requirement and limiting the range of uses to those which are clearly supportive of the principal uses associated with the IG district. (Ord. BL2025-1005 § 1(Exh. A), 2025; Ord. BL2019-111 § 1(Exh. A, §§ 3, 4), 2020; Ord. BL2015-1153 §§ 2, 8—10, 16, 2015; Ord. BL2011-898 §§ 3—5, 2011; Ord. 2009-586 § 1(Exh. A, §§ 6, 7), 2010; Amdt. 1 to Ord. BL2005-762, 2005; Ord. BL2005-762 § 2, 2005; Ord. BL2003-1399 § 1, 2003; § 1(3) of Amdt. 1 with Ord. 96-555 § 2.2, 1997)

17.08.030 District land use tables.

A. General. The range of land uses permitted as of right, permitted subject to specific conditions, permitted subject to special exceptions standards, permitted as accessory to a principal use on the same lot, or permitted only within a special overlay district are established in the following district land use tables.

In addition to all other provisions of this title, land uses established by the district land use table as permitted with conditions (PC) shall comply with the specified provision of Chapter 17.16, Article II; special exception (SE) uses shall be subject to the provisions of Chapter 17.16, Article III; and uses permitted only within an overlay district shall be subject to the applicable provision of Chapter 17.36. In the event of any conflict between the district land use table and the text of regulation, the text shall control.

B. Multiple Uses. When two or more principal uses are proposed for the same lot, each principal use shall be subject to the applicable provision of this title.

C. New Uses. The zoning administrator is empowered to categorize new land uses not enumerated in this title according to the most comparable land use classification established by this title. The zoning administrator's decision may be appealed to the board of zoning appeals.

D. Key to the District Land Use Table. The following notations are utilized in the district land use table in conjunction with the zoning districts established by this title and the land uses associated with those districts. Lack of one of the following notations in a cell of the district land use table indicates that the specific land use category is not permitted within that corresponding zoning district.

P	—	Permitted by right
PC	—	Permitted subject to specific conditions (Chapter 17.16, Article II)
SE	—	Permitted by special exception (Chapter 17.16, Article III)
A	—	Permitted as accessory to a principal uses (Chapter 17.16, Article IV)
O	—	Permitted only within an overlay district

ZONING DISTRICT LAND USE TABLE

	AG	Residential							SP	Mixed Use				Office					Commercial					Downtown (DTC)					Shopping Center			Industrial		
Key: **P—Permitted** **PC—Permitted w/conditions*** **SE—Special exception*** **A—Accessory*** **O—Overlay** *** Refer to Chapter 17.16 for standards**	**AG and AR2a**	**RS80 through RS3.75-A**	**R80 through R6-A**	**RM2 through RM20-A-NS**	**RM40 through RM100-A-NS**	**RN1 and RN2**	**RL1 through RL3**	**MHP**	**SP****	**MUN, MUN-NS, MUN-A, and MUN-A-NS**	**MUL, MUL-NS, MUL-A, and MUL-A-NS**	**MUG, MUG-NS, MUG-A, and MUG-A-NS**	**MUI, MUI-NS, MUI-A, and MUI-A-NS**	**ON**	**OL**	**OG and OG-NS**	**OR20 through OR40-A-NS**	**ORI, ORI-NS, ORI-A, and ORI-A-NS**	**CN, CN-NS, CN-A, and CN-A-NS**	**CL, CL-NS, CL-A, and CL-A-NS**	**CS, CS-NS, CS-A, and CS-A-NS**	**CA and CA-NS**	**CF and CF-NS**	**North**	**South**	**East**	**West**	**Central**	**SCN and SCN-NS**	**SCC and SCC-NS**	**SCR and SCR-NS**	**IWD**	**IR**	**IG**
Residential Uses:																																	
Single-family	P	P	P	P	P	PC***	PC***			P	P	P	P	P		PC	P	P	PC	PC	PC	PC	PC	P	P		P	P	PC	PC				
Two-family	PC		PC	P	P	PC***	PC***			P	P	P	P			PC	P	P	PC	PC	PC	PC	PC	P	P		P	P	PC	PC				
Multi-family				P	P					P	P	P	P			PC	P	P	PC	PC	PC	PC	P	P	P	P	P	P	PC	PC	P	SE	SE	SE
Townhouse (Design-based)				P	P	PC***	PC***																										
House Court (Design-based)				P	P	PC***	PC***																										
Townhouse Court (Design-based)				P	P	PC***	PC***																										
Plex House (Design-based)				P	P	PC***	PC***																										
Manor House (Design-based)				P	P	PC***	PC***																										
Multiplex (Design-based)				P	P		PC***																										
Low-Rise Courtyard Flats (Design-based)				P	P		PC***																										
Low-Rise Flats (Design-based)				P	P		PC***																										
Elderly housing				P	P					P	P	P	P			PC	P	P	PC	PC	PC	PC	P	P	P	P	P	P						
Mobile home dwelling	P							PC																										
Accessory apartment	A	A	A			A***	A***																	P	P	A	P	P						
Boarding house				P	P					P	P	P	P				P	P					P	P	P	P	P	P						
Consignment sale	PC	PC	PC	PC	PC	PC***	PC***	PC		P	P	P	P				P	P					P	P	P	P	P	P			P			
Detached accessory dwelling unit	PC	PC	PC	PC	PC	PC***	PC***										PC	PC																
Domesticated hens	P	A	A			A***	A***																										
Garage sale	A	A	A	A	A	A***	A***	A		A	A	A	A				A	A						A	A	A	A	A	A			A			
Historic bed and breakfast homestay	O	O	O	O	O	O***	O***	O		O	O	O	O	O	O	O	O	O	O	O	O	O	O	O	P	P		P	P	O	O	O	O	O	O
Historic home events	SE	SE	SE	SE	SE	SE***	SE***	SE		P	P	P	P	SE	P	P	P	P	P	P	P	P	P	P	P	P		P	P	P	P	P			
Home occupation	A	A	A	A	A	A***	A***	A		A	A	A	A	A			A	A					A	P	P	A	P	P			A			
Rural bed and breakfast homestay	SE																																	
Security residence														PC	PC	PC			PC	PC	PC	PC	PC						PC	PC	PC	PC	PC	PC
Short term rental property (STRP)—Owner occupied	A	A	A	A^	A^	A# ***	A# ***	A		A^	A^	A^	A^	A		A^	A^	A^	A^	A^	A^	A^	A^	A^	A	A		A	A	A^	A^	^	A	A	A
Institutional Uses:																																		
Correctional facility	SE																							P	P	P		P	P						P
Cultural center	SE	SE	SE	SE	SE	SE***	SE***	SE		P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	SE	SE
Day care center (Up to 75)	SE	SE	SE	SE	SE	SE***	SE***	SE		PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	P	P	P	P	P	PC	PC	PC	PC	PC	
Day care center (Over 75) *Day care centers (Over 75) as special exception uses in the AG, AR2a, RS80 through RS3.75 and R80 through R6 shall expire and are expressly repealed and shall no longer be in force and effect from and after July 1, 1999	SE*	SE*	SE*	SE	SE	SE* ***	SE* ***	SE		PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	P	P	P	P	P	PC	PC	PC	PC	PC	
Day care home—Large	SE	SE	SE	SE	SE	SE***	SE***	SE		PC	PC	PC	PC	PC			PC	PC					PC	P	P	P	P	P						
Day care home—Small	PC	PC	PC	PC	PC	PC***	PC***	PC		PC	PC	PC	PC	PC			PC	PC					PC	P	P	P	P	P						
Day care—Parent's day out	A	A	A	A	A	A***	A***	A		A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P	A	A	A	A	A	A	A	
School day care	A	A	A	A	A	A***	A***	A		A	A	A	A		A	A	P	P	A	A	A		P	P	P	P	P	P						
Monastery or convent	A			P	P					P	P	P	P		A	A	P	P	A	A	A		P	P	P	P	P	P						
Orphanage	P			P	P					P	P	P	P				P	P						P	P	P	P	P						
Religious institution	P	SE	SE	SE	SE	SE***	SE***	SE		P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P			P	P	P	P
Educational Uses:																																		
Business school											P	P	P		P	P	P	P		P	P	P	P	P	P	P	P	P	P			P	P	P	
College or university												P	P			P	P	P					P	P	P	P	P	P						

ZONING DISTRICT LAND USE TABLE

Key: P—Permitted PC—Permitted w/conditions* SE—Special exception* A—Accessory* O—Overlay * Refer to Chapter 17.16 for standards	AG	Residential							SP	Mixed Use				Office					Commercial					Downtown (DTC)					Shopping Center			Industrial		
	AG and AR2a	RS80 through RS3.75-A	R80 through R6-A	RM2 through RM20-A-NS	RM40 through RM100-A-NS	RN1 and RN2	RL1 through RL3	MHP	SP**	MUN, MUN-NS, MUN-A, and MUN-A-NS	MUL, MUL-NS, MUL-A, and MUL-A-NS	MUG, MUG-NS, MUG-A, and MUG-A-NS	MUI, MUI-NS, MUI-A, and MUI-A-NS	ON	OL	OG and OG-NS	OR20 through OR40-A-NS	ORI, ORI-NS, ORI-A, and ORI-A-NS	CN, CN-NS, CN-A, and CN-A-NS	CL, CL-NS, CL-A, and CL-A-NS	CS, CS-NS, CS-A, and CS-A-NS	CA and CA-NS	CF and CF-NS	North	South	East	West	Central	SCN and SCN-NS	SCC and SCC-NS	SCR and SCR-NS	IWD	IR	IG
Community education	PC	PC	PC	PC	PC	PC***	PC***	PC		P	P	P	P		P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P		
Dormitory				P	P					P	P	P	P				P	P					P	P	P	P	P	P						
Fraternity/sorority house					P							P	P				P	P					P	P	P	P	P	P						
Personal instruction										P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Vocational school											PC	P	P		P	P	P	P		P	P	PC	P	P	P	P	P	P			PC	P	P	
Office Uses:																																			
Alternative financial services										PC^^^	PC^^^	PC^^^	PC^^^		PC^^^	PC^^^	PC^^^	PC^^^		PC^^^	PC^^^	PC^^^	PC^^^							PC^^^	PC^^^	PC^^^	PC		
Financial institution										PC	P	P	P	PC	P	P	P	P	PC	P	P	P	P	P	P	P	P	P	P	P	P	P		
General office										PC	P	P	P	PC	P	P	P	P	PC	P	P	P	P	P	P	P	P	P	PC	P	P	P	P	PC
Leasing/sales office	A	A	A	A	A	A***	A***	A		P	P	P	P	PC	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Medical Uses:																																			
Animal hospital																																	P	P	
Assisted-care living	P			P	P					P	P	P	P		P	P	P	P		P	P		P	P	P	P	P	P	P						
Hospice	P			P	P					P	P	P	P	P	P	P	P	P	P	P	P		P	P	P	P	P	P						
Hospital												P	P			P		P			P		P	P	P	P	P	P						
Medical appliance sales										P	P	P	P		A	A	A	P		P	P		P	P	P	P	P	P	P	P	P			
Medical office										PC	P	P	P	PC	P	P	P	P	PC	P	P		P	P	P	P	P	P	P	P	P			
Medical or scientific lab											P	P	P		P	P	P	P		P	P		P	P	P	P	P	P				P	P	P
Nonresidential drug treatment facility																				P	P		P	P	P	P	P	P				P		
Nursing home	P			P	P					P	P	P	P		P	P	P	P		P	P		P	P	P	P	P	P						
Outpatient clinic											P	P	P		P	P	P	P	P	P	P		P	P	P	P	P	P	P	P	P	PC	PC	
Rehabilitation services	P									PC	P	P	P		P	P	P	P		P	P		P	P	P	P	P	P	P	P	P			
Residence for persons with disabilities, more than eight individuals				P	P					P	P	P	P				P	P					P	P	P	P	P	P						
Veterinarian										PC	P	P	P	PC	P	P	P	P	PC	P	P		P	P	P	P	P	P	PC	P	P			
Commercial Uses:																																			
Animal boarding facility																							P	P		P	P				PC	PC	
ATM										PC	PC	P	P	PC	P	P	P	P	PC	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Auction house										PC	P	P	P		A	A	A	PC	PC	P	P	P	P	P	P	P	P	P	PC	PC	P	PC	PC	PC
Automobile convenience											PC^^^	PC^^^	PC^^^							PC^^^	PC^^^	PC^^^	PC^^^	PC	PC		PC	PC	PC^^^	PC^^^	PC^^^	PC	PC	PC
Automobile parking											P^^^	P^^^	P^^^		P^^^	P^^^	P^^^	P^^^	P^^^	P^^^	P^^^	P^^^	P	P	P	P		P^^^	P^^^	P^^^	P	P	P
Automobile repair																				P^^^				PC							PC	PC	PC
Automobile sales, new																				P	P	P			P		P	P			P	P	P	P
Automobile sales, used																					PC											PC	PC	PC
Automobile service												P^^^	P^^^							P^^^	P^^^	P^^^	P^^^	P	P		P	P	P^^^	P^^^	P^^^	P	P	P
Bar or nightclub										PC	P	P	P					P	PC	P	P	P	P	P	P	P^^	P	P	PC	P	P	P	P	P
Bed and breakfast inn										PC	P	P	P	PC				P	PC	P	P	P	P	P	P	P	P	P	PC	P	P			
Beer and cigarette market										PC^^^	P^^^	P^^^	P^^^		A^^^	A^^^	A^^^	PC^^^	PC^^^	P^^^	P^^^	P^^^	P^^^	PC	PC	PC	PC	PC	PC^^^	PC^^^	P^^^	P	P	P
Boat storage																				PC	PC											P	P	P
Business service										P	P	P	P		A	A	A	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Carpet cleaning																					P		P	P	P	P	P					P	P	P
Car wash											PC^^^	PC^^^	PC^^^							PC^^^	PC^^^	PC^^^	PC^^^		PC					PC^^^	PC^^^	P	P	P
Community gardening (commercial)	P	SE	SE			SE***	SE***												P	P	P	P	P	P	P	P	P	P				P	P	P
Community gardening (noncommercial)	P	P	P			P***	P***												P	P	P	P	P	P	P	P	P	P				P	P	P
Custom assembly										PC	PC	PC	PC						PC	PC	P	PC	P	P	P	P	P	P	PC	PC	PC	P	P	P

ZONING DISTRICT LAND USE TABLE																																
	AG	Residential								SP	Mixed Use				Office					Commercial					Downtown (DTC)					Shopping Center			Industrial		
Key: **P—Permitted** **PC—Permitted w/conditions*** **SE—Special exception*** **A—Accessory*** **O—Overlay** *** Refer to Chapter 17.16 for standards**	**AG and AR2a**	**RS80 through RS3.75-A**	**R80 through R6-A**	**RM2 through RM20-A-NS**	**RM40 through RM100-A-NS**	**RN1 and RN2**	**RL1 through RL3**	**MHP**	**SP****	**MUN, MUN-NS, MUN-A, and MUN-A-NS**	**MUL, MUL-NS, MUL-A, and MUL-A-NS**	**MUG, MUG-NS, MUG-A, and MUG-A-NS**	**MUI, MUI-NS, MUI-A, and MUI-A-NS**	**ON**	**OL**	**OG and OG-NS**	**OR20 through OR40-A-NS**	**ORI, ORI-NS, ORI-A, and ORI-A-NS**	**CN, CN-NS, CN-A, and CN-A-NS**	**CL, CL-NS, CL-A, and CL-A-NS**	**CS, CS-NS, CS-A, and CS-A-NS**	**CA and CA-NS**	**CF and CF-NS**	**North**	**South**	**East**	**West**	**Central**	**SCN and SCN-NS**	**SCC and SCC-NS**	**SCR and SCR-NS**	**IWD**	**IR**	**IG**
Donation center, drop-off											PC	PC	PC						PC	PC	PC	PC	PC	PC		PC	PC		PC	PC	PC	PC	PC
Electric vehicle charging facility																				PC	PC	PC							PC	PC	PC	PC	PC
Flea market										PC	P	P	P		A	A	A	PC	PC	P	P	P	P	P	P	P	P	P	PC	PC	P	PC	PC	PC
Funeral home											P	P	P			P	P	P		P	P			P	P	P	P	P						
Furniture store											P	P	P							P	P		P	P	P	P	P	P	P	P	P			
Grocery store										PC	P	P	P		A	A	A	PC	PC	P	P	P	P	P	P	P	P	P	PC	PC	P	PC	PC	PC
Home improvement sales										PC	PC	P	P						PC	P	P		P	P	P	P	P	P	PC	P	P	P	P	P
Hotel/motel											P	P	P			P		P		P	P	P	P	P	P	P	P	P			P			
Inventory stock										A	A	A	A	A	A	A	A	A	A	A	A	A	P	A	A	A	A	A	A	A	A	P	P	P
Kennel/stable	SE																			SE	SE													
Laundry plants																					P	P	P		P		P					P	P	P
Liquor sales												P^^^	P^^^					P^^^	P^^^	P^^^	P^^^	P^^^	P	P	P	P	P	P^^^	P^^^	P^^^	P	P	P
Major appliance repair																					P		P	P	P	P	P				P	P	P
Mobile storage unit											PC	PC	PC					PC		PC	PC	PC	PC	PC	PC		PC	PC		PC	PC			
Mobile vendor																				PC	PC	PC	PC											
Nano brewery											PC	PC	PC							PC	PC													
Personal care services										P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	A	A	
Restaurant, fast-food											P	P	P		A	A	A	P	PC	P	P	P	P	P	P	P	P	P^^	P	P	P	P	P	P
Restaurant, full-service										PC	P	P	P		A	A	A	P	PC	P	P	P	P	P	P	P	P	P^^	P	P	P	P	P	P
Restaurant, take-out										PC	P	P	P		A	A	A	P	PC	P	P	P	P	P	P	P	P	P^^	P	P	P	P	P	P
Retail										PC	P	P	P		A	A	A	PC	PC	P	P	P	P	P	P	P	P	P	P	P	PC	PC	P	PC	PC
Self-service storage																					PC		P	P	P		P	P				P	P	P
Short term rental property (STRP)—Not owner occupied										PC^	PC^	PC^	PC^			PC^	PC^	PC^	PC^	PC^	PC^	PC^	PC	PC		PC	PC	PC^	PC^	PC^			
Vehicular rental/leasing																					P	P	PC	PC	PC		PC	PC			PC	P	P	P
Vehicular sales and service, limited																					PC				P	P						P	P	P
Wrecker service																									P							P	P	P
Communication Uses:																																		
Amateur radio antenna	A	A	A	A	A	A***	A***	A		A	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P		P	P	P	P	P	P	P	P
Audio/video tape transfer										P	P	P	P		P	P	P	P		P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Communications hut	PC	PC	PC	PC	PC	PC***	PC***	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC
Multi-media production										P	P	P	P		P	P	P	P			P	P	P	P	P	P	P	P	P			P	P	P
Printing and publishing										PC	P	P	P		P	P	P	P	PC	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Radio/TV studio												P	P		P	P	P	P			P	P	P	P	P	P	P	P	P			P	P	P
Satellite dish	A	A	A	A	A	A***	A***	A		P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Telecommunication facility	PC	PC	PC	PC	PC	PC***	PC***	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC
Industrial Uses:																																		
Artisan distillery																						PC	P	P	P	P	P	P				P	P	P
Asphalt plant																																		PC
Building contractor supply																					PC		P	PC	PC		PC					P	P	P
Compressor station																																P	P	P
Concrete plant																																		PC
Distributive business/wholesale											PC	PC	PC								PC		P	PC	PC		PC					P	P	P
Fuel storage	A												A			A		A			A	A	A	A	A		A			A	A	A	A	P
Heavy equipment, sales and service																																P	P	P

ZONING DISTRICT LAND USE TABLE																																
	AG	Residential								SP	Mixed Use				Office						Commercial					Downtown (DTC)					Shopping Center			Industrial		
Key: **P—Permitted** **PC—Permitted w/conditions*** **SE—Special exception*** **A—Accessory*** **O—Overlay** *** Refer to Chapter 17.16 for standards**	**AG and AR2a**	**RS80 through RS3.75-A**	**R80 through R6-A**	**RM2 through RM20-A-NS**	**RM40 through RM100-A-NS**	**RN1 and RN2**	**RL1 through RL3**	**MHP**	**SP****	**MUN, MUN-NS, MUN-A, and MUN-A-NS**	**MUL, MUL-NS, MUL-A, and MUL-A-NS**	**MUG, MUG-NS, MUG-A, and MUG-A-NS**	**MUI, MUI-NS, MUI-A, and MUI-A-NS**	**ON**	**OL**	**OG and OG-NS**	**OR20 through OR40-A-NS**	**ORI, ORI-NS, ORI-A, and ORI-A-NS**	**CN, CN-NS, CN-A, and CN-A-NS**	**CL, CL-NS, CL-A, and CL-A-NS**	**CS, CS-NS, CS-A, and CS-A-NS**	**CA and CA-NS**	**CF and CF-NS**	**North**	**South**	**East**	**West**	**Central**	**SCN and SCN-NS**	**SCC and SCC-NS**	**SCR and SCR-NS**	**IWD**	**IR**	**IG**
Hazardous operation																																SE
Manufacturing, Artisan											PC	PC	PC							PC		PC	PC	PC	PC	PC					PC	PC	PC
Manufacturing, heavy																																P
Manufacturing, medium																																PC	PC
Manufacturing, light																						PC		P	PC	PC		PC				P	P	P
Microbrewery																								P	P	P	P	P				P	P	P
Research service													P					P				P		P	P	P	P	P				P	P	P
Scrap operation																																		P
Tank farm																																PC	PC	P
Tasting room																																A	A	A
Warehouse											PC	PC	PC									PC		P	PC	PC		PC				P	P	P
Transportation Uses:																																		
Airport, medium or large commercial service	PC																					PC										PC	PC	PC
Airport/heliport	SE																																SE	SE
Boat dock (commercial)												P	P										P	P	P	P	P	P				P	P	P
Bus station/landport	SE												SE					SE				P	SE	P	P	P	P	P				SE	SE	SE
Bus transfer station	SE	SE	SE	SE	SE	SE***	SE***	SE		SE	SE	P	P	SE	SE	P	SE	P	SE	P	SE	P	P	P	P	P	P	P	P	SE	P	P	P	P	P
Commuter rail	SE	SE	SE	SE	SE	SE***	SE***	SE		SE	SE	SE	P	SE	SE	P	SE	P	SE	SE	SE	P	P	P	P	P	P	P	P	SE	P	P	P	P	P
Helistop												SE	SE			SE						SE		SE	SE	SE	SE	SE	SE				SE	SE	SE
Motor freight																																	P	P	P
Park and ride lot	SE	PC	PC	PC	PC	PC***	PC***					P	P		PC	P	P	P		P	P	P	P						PC	P	P	P	P	P
Railroad station	SE												SE					SE					SE	SE	SE	SE	SE					P	P	P
Railroad yard																																	P	P	P
Water taxi station												P	P			P	P	P				P	P	P	P	P	P		P		P	P	P	P
Utility Uses:																																		
Power/gas substation	PC	PC	PC	PC	PC	PC***	PC***	PC		PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Power plant													A					A			A	A	P	A	A	A	A	A			A	P	P	P
Reservoir/water tank	PC	PC	PC	PC	PC	PC***	PC***	PC		PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	P	P	P	P	P	P	P	P	P	P	P	PC	P	P
Safety services	SE	SE	SE	SE	SE	SE***	SE***	SE		SE	P	P	P	SE	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Waste water treatment	SE	SE	SE	SE	SE	SE***	SE***	SE		SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	P
Water/sewer pump station	P	P	P	P	P	P***	P***	P		P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Water treatment plant	SE	SE	SE	SE	SE	SE***	SE***	SE		SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	P
Wind energy facility (small)	PC	PC	PC	PC	PC	PC***	PC***	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC
Wind energy facility (utility)																										P									
Waste Management Uses:																																		
Collection center																																	P	P	P
Construction/demolition landfill	PC												PC								PC	PC										PC	PC	PC
Construction/demolition waste processing (project specific)	PC	PC	PC	PC	PC	PC***	PC***	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC	PC		PC	PC	PC	PC	PC	PC	PC
Medical waste												A	A			A		A		A	A		A	A	A	A	A	A				PC	PC	PC
Recycling collection center	A	A	A	A	A	A***	A***	A		A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P	P	P	P	P	A	A	A	P	P	P
Recycling facility																																	PC	PC	PC
Sanitary landfill	PC																																PC	PC	PC
Waste transfer																							SE										SE	SE	SE

ZONING DISTRICT LAND USE TABLE

Key: P—Permitted PC—Permitted w/conditions* SE—Special exception* A—Accessory* O—Overlay * Refer to Chapter 17.16 for standards	AG	Residential							SP	Mixed Use				Office					Commercial					Downtown (DTC)					Shopping Center			Industrial		
	AG and AR2a	RS80 through RS3.75-A	R80 through R6-A	RM2 through RM20-A-NS	RM40 through RM100-A-NS	RN1 and RN2	RL1 through RL3	MHP	SP**	MUN, MUN-NS, MUN-A, and MUN-A-NS	MUL, MUL-NS, MUL-A, and MUL-A-NS	MUG, MUG-NS, MUG-A, and MUG-A-NS	MUI, MUI-NS, MUI-A, and MUI-A-NS	ON	OL	OG and OG-NS	OR20 through OR40-A-NS	ORL, ORI-NS, ORI-A, and ORI-A-NS	CN, CN-NS, CN-A, and CN-A-NS	CL, CL-NS, CL-A, and CL-A-NS	CS, CS-NS, CS-A, and CS-A-NS	CA and CA-NS	CF and CF-NS	North	South	East	West	Central	SCN and SCN-NS	SCC and SCC-NS	SCR and SCR-NS	IWD	IR	IG
Recreation and Entertainment Uses:																																	
Adult entertainment													O										O	O	O		O	O				O	O	O
After hours establishment																						PC	PC	PC	PC		PC	PC					PC	PC
Camp	SE																																	
Club										P^^^	P^^^	P^^^	P^^^					P^^^[1]		P^^^	P^^^		P^^^	P	P	P	P	P						
Commercial amusement (inside)										P	P	P	P					P	P	P	P	P	P	P	P	P^^	P	P	P	P	P	P	SE
Commercial amusement (outside)											P	P	P							P	P	P	P	SE	SE	P^^	SE	P	P	P	P	SE	SE	
Country club	SE	SE	SE	SE	SE	SE***	SE***	SE				P	P			P	P	P		P	P	P	P	P	P	P	P	P						
Drive-in movie													P								P	P												
Driving range	SE	SE	SE	SE	SE	SE***	SE***			PC	PC	PC	PC			PC	PC	PC		PC	PC	PC	PC										
Fairground												P	P										P									P	P	
Golf course	SE	SE	SE	SE	SE	SE***	SE***	SE		P	P	P	P			P	P	P		P	P	P	P										
Greenway	P	P	P	P	P	P***	P***	P		P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Park	P	P	P	P	P	P***	P***	P		P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Racetrack	SE												SE										SE								SE	SE	SE
Recreation center	SE	SE	SE	SE	SE	SE***	SE***	SE		P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	
Rehearsal hall											P	P	P		A	P	P	P		P	P	P	P	P	P	P	P	P				SE	SE	SE
Sex club																																PC	PC	PC
Small outdoor music event																					PC	PC	PC			P								
Stadium arena/convention center												PC	P		A	A		P			PC	PC	P	P	P	P	P	P				P	P	P
Temporary festival		SE	SE	SE	SE	SE***	SE***	SE		SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	SE	P	P	P	P	P	P	SE	P	P	P	P	P
Theater											P	P	P					P		P	P	P	P	P	P	P	P	P	P	P				
Theatre																																SE	SE	SE
Zoo	SE																					SE												
Other Uses:																																		
Agricultural activity	P	A	A			A***	A***																											
Cemetery	P	PC	PC	PC	PC	PC***	PC***	PC				PC	PC		PC	PC	PC	PC		PC	PC		PC	P	P		P	P						
Domestic animals/wildlife	P	A	A			A***	A***																											
Mineral extraction	SE																																SE	PC
On-site agricultural sales	PC																																	
Pond/lake	SE	SE	SE	SE	SE	SE***	SE***	P		P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P

** Land uses shall be as specifically listed in the site specific SP ordinance.

[1] Club is a permitted use only in ORI-A. Club is not a permitted use in ORI.

^ Short term rental property—Owner occupied and Short term rental property—Not owner occupied uses shall be prohibited from NS Districts.

^^ Refer to the standards and limitations in Chapter 17.37 Downtown Code (DTC).

^^^ Uses located within the commercial compatibility overlay shall be regulated by Section 17.36.760 and Section 17.36.770.

*** Refer to the standards and limitations in Chapter 17.38.

Short term rental property—Owner occupied is only permitted with a single-family use.

(Ord. BL2025-1007 § 2(Exh. A), 2025; Ord. BL2025-1005 § 1(Exhs. A, B), 2025; Ord. BL2025-958 § 2, 2025; Ord. BL2025-909 § 1(Exh. A), 2025; Ord. BL2025-908 § 1(Exh. A), 2025; Ord. BL2024-452 § 1(Exh. A), 2024; Amdt. 1 to Ord. BL2024-184 §§ 2, 4, 2024; Ord. BL2024-184 §§ 2—4, 2024; Ord. BL2022-1508 § 1(Exh. A), 2023; Ord. BL2022-1328 § 1, 2022; Ord. BL2022-1216 § 1, 2022; Ord. BL2022-1073 § 2, 2022; Ord. BL2021-721 § 1(Exh. A), 2021; Ord. BL2019-111 § 1(Exh. A, §§ 5,

6), 2020; Ord. BL2019-32 § 2, 2019; Ord. BL2019-1633 § 1, 2019, eff. 1-1-2022; Ord. BL2018-1457 § 1, 2019; Ord. BL2017-899 § 2, 2017; Ord. BL2017-608 §§ 2—4, 2018; Ord. BL2017-799 §§ 1, 2, 2017; Ord. BL2016-415 § 2, 2016; Ord. BL2016-327 § 1, 2016; Ord. BL2016-267 §§ 1, 2, 2016; Ord. BL2016-132 §§ 3, 4, 2016; Amdt. 1 to Ord. BL2016-117 § 3, 2016; Ord. BL2016-117 § 3, 2016; Ord. BL2015-14 § 2, 2015; Ord. BL2015-13 § 1, 2015; Ord. BL2015-1210 § 2, 2015; Ord. BL2015-1153 §§ 3, 11, 2015; Ord. BL2015-1121 §§ 2, 7, 9, 12, 15, 17, 19, 2015; Ord. BL2015-1099 § 2, 2015; Ord. BL2015-1098 §§ 2, 3, 2015; Ord. BL2015-1036 § 1, 2015; Ord. BL2014-909 § 2, 2015; Ord. BL2014-908 § 2, 2014; Ord. BL2014-747 § 2, 2014; Ord. BL2014-740 § 2, 2014; Ord. BL2014-739 § 2, 2014; Ord. BL2014-651 § 2, 2014; Ord. BL2013-418 §§ 1—7, 2013; Ord. BL2013-394 § 1, 2013; Ord. BL2012-312 § 1, 2012; Ord. BL2012-249 § 2, 2012; Ord. BL2012-204 § 2, 2012; Ord. BL2012-182 § 2, 2012; Amdt. 1 to Ord. BL2012-158 § 2, 2012; Ord. BL2012-158 § 2, 2012; Ord. BL2012-117 § 1, 2012; Ord. BL2011-47 § 3, 2012; Ord. BL2011-900 § 2, 2011; Ord. BL2011-898 § 6, 2011; Ord. BL2010-782 § 1, 2010; Ord. BL2010-745 § 1, 2010; Ord. BL2010-647 § 1, 2010; Ord. BL2010-635 § 2, 20100; Ord. BL2009-586 § 1(Exh. A, §§ 8, 9), 2010; Ord. BL2009-537 § 2, 2009; Ord. BL2009-479 § 2, 2009; Ord. BL2009-477 § 2, 2009; Amdt. 1 to Ord. BL2008-299 § 2, 2008; Ord. BL2008-299 § 2, 2008; Amdt. 1 to Ord. BL2008-169 § 2, 2008; Ord. BL2008-169 § 2, 2008; Ord. BL2008-243 § 1, 2008; Ord. BL2008-282 § 2, 2008; Ord. BL2008-202 § 1, 2008; Ord. BL2008-167 § 2, 2008; Ord. BL2008-150 § 1, 2008; Ord. BL2006-1260 § 1, 2007; Ord. BL2006-1283 § 2, 2007; Ord. BL2006-973 § 2, 2006; Ord. BL2006-972 § 2, 2006; Ord. BL2005-762 § 3, 2005; Ord. BL2005-704 § 1, 2005; Ord. BL2005-630 § 2, 2005; Ord. BL2004-492 § 1, 2005; Ord. BL2004-233 § 2, 2004; Ord. BL2004-220 § 1 (part), 2004; Ord. BL2004-156 § 1 (part), 2004; Ord. BL2003-92 § 1, 2004; Ord. BL2002-1226 § 1 (part), 2003; Ord. BL2002-1011§ 1 (part), 2002; Ord. BL2001-674 § 1 (part), 2001; Ord. BL2000-319 § 1, 2000; Ord. BL2000-242 § 1 (part), 2000; Ord. BL2000-241 § 1, 2000; Ord. BL2000-203 § 1,2000; Ord. BL2000-171 § 1, 2000; Ord. BL99-117 § 1 (part), 2000; Amdt. 1 (part) with Ord. 99-1644 § 1 (part), 1999; Ord. 99-1642 § 1 (part), 1999; Ord. 99-1616 § 1 (part), 1999; Amdts. 1 and 2 to Ord. 98-1321 § 1 (part), 8/7/98; Ord. 98-1268 § 1 (part), 1998; Ord. 98-1267 § 1, 1998; § 2(1) of Amdt. 1 with Ord. 96-555 § 2.3, 1997)

Chapter 17.10

RESERVED*

*Editor's note—Ord. BL2016-133, § 6, passed Sept. 6, 2016, repealed Ch. 17.10, §§ 17.10.010—17.10.040, which pertained to inclusionary zoning and derived from Ord. BL2015-1139 § 3, 2015.

Chapter 17.12

DISTRICT BULK REGULATIONS

Sections:

17.12.010	**Purpose and general provisions.**
17.12.020	**District Bulk Tables.**
17.12.030	**Street setbacks.**
17.12.035	**Street setbacks within the urban zoning overlay district.**
17.12.040	**Other setbacks.**
17.12.050	**Accessory building floor area controls.**
17.12.060	**Building height controls.**
17.12.070	**Special floor area ratio (FAR) provisions.**
17.12.080	**Compact development.**
17.12.090	**Conservation development.**
17.12.100	**Single-family cottage developments.**
17.12.110	**Alternative minimum lot size and setbacks for attached housing.**
17.12.120	**Reserved.**

17.12.010 Purpose and general provisions.

A. Purpose and Intent. The purpose of this chapter is to establish appropriate standards relating to the size and placement of structures within each of the zoning classifications created by this title in order to assist in the achievement of the goals established in the general plan for the development of the community.

B. General Provisions. The required specifications for lot area, residential density, floor area ratio (FAR), impervious surface ratio (ISR), setbacks, building heights and separation between buildings are specified in this chapter on the basis of zoning district classification. Lots shall be created, and building and zoning compliance permits shall be issued only in compliance with these bulk regulations. (Ord. 96-555 § 3.1, 1997)

17.12.020 District Bulk Tables.

The bulk standards of this code are established by the District Bulk Tables of this section. The standards contained in these tables apply uniformly to all uses within the same zoning district classification, with the exception of uses that are permitted with conditions (PC), as special exceptions (SE) in the district land use table of Section 17.08.030 or as provided in the Downtown Code (Chapter 17.37), which may have higher standards. Alternative standards may be imposed by any planned unit development, historic or urban design overlay district as long as the standards are consistent with the purpose and intent of the overlay district.

A. District Bulk Table 17.12.020A establishes the bulk requirements for one-family and two-family dwellings in residential districts.

B. District Bulk Table 17.12.020B establishes the bulk requirements for multifamily and nonresidential structures in residential districts.

C. District Bulk Table 17.12.020C establishes the bulk requirements for all structures in AG, mixed-use and nonresidential districts.

D. District Bulk Table 17.12.020D establishes the bulk requirements for all structures in the alternative zoning districts for multi-family, mixed-use, office and commercial.

Table 17.12.020A

SINGLE-FAMILY AND TWO-FAMILY DWELLINGS

Zoning District	Minimum Lot Area (in sq. ft.)	Maximum Building Coverage	Minimum Rear Setback (in ft.)	Minimum Side Setback (in ft.)	Maximum Height
AG	5 acres	0.20	20	20	3 stories
AR2a	2 acres	0.20	20	20	3 stories
RS80, R80	80,000	0.20	20	20	3 stories
RS40, R40	40,000	0.25	20	15	3 stories
RS30, R30	30,000	0.30	20	15	2.5 stories See Notes 6 & 7
RS20, R20	20,000	0.35	20	10	2.5 stories See Notes 6 & 7
RS15, R15	15,000	0.35	20	10	2.5 stories See Notes 6 & 7
RS10, R10	10,000	0.40	20	5	2.5 stories See Notes 6 & 7
R8, R8-A	8,000	0.45	20	5	2.5 stories See Notes 6 & 7
RS7.5, RS7.5-A	7,500	0.45	20	5	2.5 stories See Notes 6 & 7
R6, R6-A	6,000	0.50	20	5	2.5 stories See Notes 6 & 7
RS5, RS5-A	5,000	0.50	20	5	2.5 stories See Notes 6 & 7
RS3.75, RS3.75-A	3,750	0.60	20	3	2.5 stories See Notes 6 & 7
RM2, RM2-NS	20,000	0.35	20	15	3 stories
RM4, RM4-NS	10,000	0.40	20	10	3 stories
RM6, RM6-NS	6,000	0.50	20	10	3 stories
RM9, RM9-A, RM9-NS, RM9-A-NS	5,000	0.50	20	5	3 stories
RM15, RM15-A, RM15-NS, RM15-A-NS	5,000	0.50	20	5	3 stories
RM20, RM20-A, RM20-NS, RM20-A-NS, OR20, OR20-A, OR20-NS, OR20-A-NS	3,750	0.60	20	5	3 stories
RM40, RM40-A, RM40-NS, RM40-A-NS, RM60, RM60-A, RM60-NS, RM60-A-NS, MUN, MUN-A, MUN-NS, MUN-A-NS, MUL, MUL-A, MUL-NS, MUL-A-NS, MUG, MUG-A, MUG-NS, MUG-A-NS, MUI, MUI-A, MUI-NS, MUI-A-NS, ON, OR40, OR40-A, OR40-NS, OR40-A-NS, ORI, ORI-A, ORI-NS, ORI-A-NS	3,750	0.60	20	3	3 stories
RN1, RN2, RL1, RL2, RL3	See Chapter 17.38	See Chapter 17.38	See Chapter 17.38	See Chapter 17.38	See Chapter 17.38
DTC	See Chapter 17.37	See Chapter 17.37	See Chapter 17.37	See Chapter 17.37	See Chapter 17.37

Note 1: For all zoning districts permitting multi-family uses, the rear and side setbacks for single-family cottage developments shall be a minimum of three feet. This note shall not apply to the DTC district or Design-Based Multi-Family districts.

Note 2: When a right-of-way dedication is required for an existing lot or parcel along an existing street that meets the minimum lot area or could be subdivided into two or more lots that would each meet the minimum lot area for the zoning district prior to the dedication of right-of-way, the minimum lot area shall be considered to be the area prior to the dedication. The newly created lots shall meet all other bulk standards of the Zoning Code based on the dimensions after the dedication of the right-of-way.

Note 3: Single-family and two-family dwellings in the RM9-A, RM9-A-NS, RM15-A, RM15-A-NS, RM20-A,

RM20-A-NS, RM40-A, RM40-A-NS, OR20-A, OR20-A-NS, OR40-A, OR40-A-NS, ORI-A, ORI-A-NS, MUN-A, MUN-A-NS, MUL-A, MUL-A-NS, MUG-A, MUG-A-NS, MUI-A, and MUI-A-NS shall use the build-to zone standards listed in Table 17.12.020D.

Note 4: In addition to the height restrictions in Section 17.12.060, the height of two detached dwelling units on a single lot cannot exceed a ratio of 1.0 horizontal to 1.5 vertical for each structure. The appropriate height shall be determined by the metro historic zoning commission for properties within a historic overlay. Notwithstanding the above provisions, two-family structures legally constructed prior to the effective date of this ordinance may remove the connector required under the previous definition of two-family, regardless of the height of the units.

Note 5: In RS3.75-A, RS5-A, RS7.5-A, R6-A and R8-A districts, the following standards shall apply:

a. Access and Driveways.
   1. Where existing, access shall be from an improved alley only. Where no improved alley exists, one driveway within the street setback may be permitted.
   2. For a corner lot, the driveway shall be located within thirty feet of the rear property line.
   3. Parking, driveways and all other impervious surfaces in the required street setback shall not exceed twelve feet in width.

b. Garages.
   1. Detached. The front of any detached garage shall be located behind the rear of the primary structure. The garage door of a detached garage may face the street.
   2. Attached. The garage door shall face the side or rear property line.

c. A minimum raised foundation of 18—36" is required.

Note 6: Maximum height to eave/parapet limited to 24 feet; maximum height to roof ridge line limited to 35 feet, excluding elevator or stair bulkheads and chimneys or flues. If fifty percent or more of the existing structures on the same block face and oriented to the same street are more than 35 feet in height, then the maximum height is limited to 3 stories in 45 feet. Any exposed foundation in an existing structure on the same block face and oriented to the same street shall count toward the height of that structure.

Note 7: Within the area bounded to the north by Interstate 65, to the west by Interstates 65 & 40, to the south by Interstate 40, and to the east by Interstate 24, the maximum allowed height shall be 3 stories in 45 feet. The eave and ridge height maximums established in Note 6 shall not apply to single-family and two-family permits within the area described in this note.

Note 8: For all districts, height shall be measured from the average grade plane post-development.

Table 17.12.020B

MULTIFAMILY, MOBILE HOMES AND NONRESIDENTIAL USES

Zoning Districts	Min. Lot Area (sq. ft.)	Max. Density (units per acre)	Max. FAR	Max. ISR	Min. Rear Setback (in ft.)	Min. Side Setback (in ft.)	Max. Height at Setback Line (in ft.)	Slope of Height Control Plane (V to H)
AG	5 acres	Doesn't apply	0.40	0.60	20	30	20	2 to 1
AR2a	2 acres	Doesn't apply	0.40	0.60	20	30	20	2 to 1
RS80, R80	80,000	Doesn't apply	0.40	0.60	20	30	20	2 to 1
RS40, R40	40,000	Doesn't apply	0.40	0.60	20	25	20	2 to 1
RS30, R30	30,000	Doesn't apply	0.40	0.60	20	25	20	2 to 1
RS20, R20	20,000	Doesn't apply	0.40	0.60	20	20	20	2 to 1
RS15, R15	15,000	Doesn't apply	0.40	0.60	20	20	20	2 to 1
RS10, R10	10,000	Doesn't apply	0.40	0.60	20	15	20	2 to 1
R8, R8-A	8,000	Doesn't apply	0.50	0.70	20	15	20	2 to 1
RS7.5, RS7.5-A	7,500	Doesn't apply	0.50	0.70	20	15	20	2 to 1
R6, R6-A	6,000	Doesn't apply	0.60	0.70	20	15	20	2 to 1
RS5, RS5-A	5,000	Doesn't apply	0.60	0.70	20	15	20	2 to 1
RS3.75, RS3.75-A	3,750	Doesn't apply	0.60	0.70	20	15	20	2 to 1
RM2, RM2-NS	66,000	2	0.40	0.60	20	20 See Note 3	20	2 to 1
RM4, RM4-NS	33,000	4	0.40	0.60	20	10 See Note 3	20	2 to 1
RM6, RM6-NS	22,000	6	0.60	0.70	20	10 See Note 3	20	2 to 1
RM9, RM9-NS	15,000	9	0.60	0.70	20	10 See Note 3	20	2 to 1
RM15, RM15-NS	10,000	15	0.75 See Note 2	0.70	20	10 See Note 3	20	2 to 1
RM20, RM20-NS, OR20, OR20-NS	7,500	20	0.80 See Note 2	0.70	20	5 See Note 3	30	2 to 1
RM40, RM40-NS, OR40, OR40-NS	6,000	40	1.00 See Note 2	0.75	20	5 See Note 3	45	2 to 1
RM60, RM60-NS	6,000	60	1.25 See Note 2	0.80	20	5 See Note 3	65	1.5 to 1
RN1, RN2, RL1, RL2, RL3	See Ch. 17.38	See Ch. 17.38	See Ch. 17.38	See Ch. 17.38	See Ch. 17.38	See Ch. 17.38	See Ch. 17.38	See Ch. 17.38
MHP	2.0 acres	9	See Ch. 17.16	See Ch. 17.16	See Ch. 17.16	See Ch. 17.16	See Ch. 17.16	No plane
DTC	See Ch. 17.37	See Ch. 17.37	See Ch. 17.37	See Ch. 17.37	See Ch. 17.37	See Ch. 17.37	See Ch. 17.37	See Ch. 17.37

Note 1: Street setbacks are listed in Table 17.12.030A and 17.12.030B.

Note 2: No maximum FAR applies to multifamily developments in the RM15, RM15-NS, RM20, RM20-NS, RM40, RM40-NS, RM60, RM60-NS, OR20, OR20-NS, OR40, OR40-NS districts.

Note 3: Within the urban zoning overlay district, any attached townhomes or rowhouses with alley access to required off-street parking, may have a zero-foot side setback (1) on internal lot lines between units, or (2) where the side of a unit is adjacent to an area having a minimum width of ten feet that is shown on the final site plan as an open space area or a required landscape buffer yard, provided that each unit has a private yard and no more than eight units are contained in any single-structure. This note shall not apply to the DTC district.

Note 4: [Reserved.]

Note 5: [Reserved.]

Note 6: Within the urban zoning overlay district, any proposed development that does not meet the setback standards within this table may apply for a special exception as provided for in Sections 17.12.035.A and 17.12.035.D. This note shall not apply to the DTC district.

Note 7: When a right-of-way dedication is required for an existing lot or parcel along an existing street that could be subdivided into two or more lots that would each meet the minimum lot requirements for the zoning district prior to the dedication of right-of-way, the minimum lot area shall be considered to be the area prior to the dedication. The newly created lots shall meet all other bulk standards of the Zoning Code based on the dimensions after the dedication of the right-of-way.

Note 8: In RS3.75-A, RS5-A, RS7.5-A, R6-A and R8A districts, the following standards shall apply:

a. Access and Driveways.
   1. Where existing, access shall be from an improved alley only. Where no improved alley exists, one driveway within the street setback may be permitted.
   2. For a corner lot, the driveway shall be located within thirty feet of the rear property line.
   3. Parking, driveways and all other impervious surfaces in the required street setback shall not exceed twelve feet in width.

b. Garages.
   1. Detached. The front of any detached garage shall be located behind the rear of the primary structure. The garage door of a detached garage may face the street.
   2. Attached. The garage door shall face the side or rear property line.

c. A minimum raised foundation of 18—36" is required.

Table 17.12.020B.1

MINIMUM LOT SIZE AND SETBACKS FOR ATTACHED HOUSING

Zoning District	Minimum Lot Area (sq. ft.)	Minimum Rear Setback (ft.)	Minimum Side Setback (ft.)	Maximum Height
RM2, RM2-NS, RM4, RM4-NS, RM6, RM6-NS, RM9, RM9-NS, RM9-A, RM9-A-NS	2,800	5	0 common wall 5 end unit	3 stories
RM15, RM15-NS, RM15-A, RM15-A-NS	1,800	5	0 common wall 5 end unit	3 stories
RM20, RM20-NS, RM20-A, RM20-A-NS OR20, OR20-NS, OR20-A, OR20-A-NS, OR40, OR40-NS, OR40-A, OR40-A-NS, ORI, ORI-NS, ORI-A, ORI-A-NS, MUN, MUN-NS, MUN-A, MUN-A-NS, MUL, MUL-NS, MUL-A, MUL-A-NS, MUG, MUG-NS, MUG-A, MUG-A-NS, MUI, MUI-NS, MUI-A, MUI-A-NS, RM40, RM40-NS, RM40-A, RM40-A-NS, RM60, RM60-NS, RM60-A, RM60-A-NS, RM80-A, RM80-A-NS, RM100-A, RM100-A-NS	1,500	5	0 common wall 5 end unit	3 stories
RN1, RN2, RL1, RL2, RL3	See Chapter 17.38	See Chapter 17.38	See Chapter 17.38	See Chapter 17.38
DTC	See Chapter 17.37	See Chapter 17.37	See Chapter 17.37	See Chapter 17.37

Table 17.12.020C

MIXED-USE AND NONRESIDENTIAL DISTRICTS

Zoning District	Min. Lot Area	Max. FAR	Max. ISR	Min. Rear Setback (in ft.)	Min. Side Setback (in ft.)	Max. Height at Setback Line (in ft. or stories)	Slope of Height Control Plane (V to H)
SP	See Note 5	See Note 5	See Note 5	See Note 5	See Note 5	See Note 5	See Note 5
MUN, MUN-NS	None	0.60 See Note 2	0.80	20	None req.	3 stories to a maximum of 45 ft.	3 stories max.
MUL, MUL-NS	None	1.00 See Note 2	0.90	20	None req.	3 stories to a maximum of 45 ft.	1.5 to 1
MUG, MUG-NS	None	3.00 See Note 2	0.90	20	None req.	5 stories to a maximum of 75 ft.	1.5 to 1
MUI, MUI-NS	None	5.00 See note 2	1.00	None req.	None req.	7 stories to a maximum of 105 ft.	1.5 to 1
ON	None	0.40	0.60	20	5	20	20 ft. max.
OL	None	0.75	0.70	20	5	30	1.5 to 1
OG, OG-NS	None	1.50	0.80	20	5	30	1.5 to 1
ORI, ORI-NS	None	3.00	0.90	20	None req.	65	1.5 to 1
CN, CN-NS	None	0.25	0.80	20	None req.	20	20 ft. max.
CL, CL-NS	None	0.60	0.90	20	None req.	30	1.5 to 1
CS, CS-NS	None	0.60	0.90	20	None req.	30	1.5 to 1
CA, CA-NS	None	0.60	0.90	20	None req.	30	1.5 to 1
CF, CF-NS	None	5.00	1.00	None req.	None req.	65	1.5 to 1
DTC	See Chapter 17.37	See Chapter 17.37	See Chapter 17.37	See Chapter 17.37	See Chapter 17.37	See Chapter 17.37	See Chapter 17.37
SCN, SCN-NS	None	0.25	0.80	20	None req.	20	20 ft. max.
SCC, SCC-NS	None	0.50	0.80	20	None req.	30	1.5 to 1
SCR, SCR-NS	None	1.00	0.80	20	None req.	30	1.5 to 1
IWD	None	0.80	0.90	20	None req.	30	1.5 to 1
IR	None	0.60	0.90	20	None req.	45	1.5 to 1
IG	None	0.60	0.90	20	None req.	60	1.5 to 1

Note 1: [Reserved.]

Note 2: Floor area bonuses are available (1) for the MUI and MUI-NS districts, and (2) within the urban zoning overlay district, for all mixed-use districts (See Section 17.12.060).

Note 3: Street setbacks are listed in Table 17.12.030B.

Note 4: For properties located within an adopted Redevelopment District an alternative standard for the maximum allowable building height at a setback line may be established as part of an adopted Redevelopment District plan.

Note 5: Development standards shall be as specifically listed in the site specific SP ordinance.

Note 6: Within the urban zoning overlay district, any proposed development that does not meet the setback standards within this table may apply for a special exception as provided for in Sections 17.12.035.A and 17.12.035.D.

Table 17.12.020D

MULTI-FAMILY, MIXED USE AND NONRESIDENTIAL ALTERNATIVE ZONING DISTRICTS

Zoning District	Min. Lot Area	Max. Density	Max. FAR (see Note 1)	Max. ISR (see Note 2)	Min. Rear Setback (in ft.)	Min. Side Setback (in ft.)	Max. Height in Build-to Zone	Min. Step-back	Max. Height	Build-to Zone (in ft.) (See Note 3)
MUN-A, MUN-A-NS	None	Doesn't apply	0.60	0.80	20	None req.	3 stories in 45 feet	15 feet	4 stories in 60 feet	0—15 in the UZO, 0—80 outside of the UZO
MUL-A, MUL-A-NS	None	Doesn't apply	1.00	0.90	20	None req.	3 stories in 45 feet	15 feet	4 stories in 60 feet	0—15 in the UZO, 0—80 outside of the UZO
MUG-A, MUG-A-NS	None	Doesn't apply	3.00	0.90	20	None req.	5 stories in 75 feet	15 feet	7 stories in 105 feet	0—15
MUI-A, MUI-A-NS	None	Doesn't apply	5.00	1.00	None req.	None req.	7 stories in 105 feet	15 feet	15 stories in 150 feet	0—15
RM9-A, RM9-A-NS	15,000	9	0.60 See Note 8	0.70	20	10 See Note 3	30 feet	15 feet	35 feet	0—15 in the UZO, 0—80 outside of the UZO
RM15-A, RM15-A-NS	10,000	15	0.75 See Note 8	0.70	20	10 See Note 3	30 feet	15 feet	35 feet	0—15 in the UZO, 0—80 outside of the UZO
RM20-A, RM20-A-NS, OR20-A, OR20-A-NS	7,500	20	0.80 See Note 2	0.70	20	5 See Note 3	30 feet	15 feet	45 feet	0—15 in the UZO, 0—80 outside of the UZO
RM40-A, RM40-A-NS, OR40-A, OR40-A-NS	6,000	40	1.00 See Note 1	0.75	20	5 See Note 3	45 feet	15 feet	60 feet	0—15
RM60-A, RM60-A-NS	6,000	60	None	0.80	20	5 See Note 3	65 feet	15 feet	90 feet	0—15
RM80-A, RM80-A-NS	6,000	80	None	0.90	20	5	65 feet	15 feet	90 feet	0—15
RM100-A, RM100-A-NS	6,000	100	None	0.90	20	5	65 feet	15 feet	90 feet	0—15
ORI-A, ORI-A-NS	None	Doesn't apply	3.00	0.90	20	None req.	65 feet	15 feet	105	0—15

Zoning District	Min. Lot Area	Max. Density	Max. FAR (see Note 1)	Max. ISR (see Note 2)	Min. Rear Setback (in ft.)	Min. Side Setback (in ft.)	Max. Height in Build-to Zone	Min. Step-back	Max. Height	Build-to Zone (in ft.) (See Note 3)
CN-A, CN-A-NS	None	Doesn't apply	0.25	0.80	20	None req.	2 stories in 30 feet	Doesn't apply	2 stories in 30 feet	0—15 in the UZO, 0—80 outside of the UZO
CL-A, CL-A-NS	None	Doesn't apply	0.60	0.90	20	None req.	3 stories in 45 feet	15 feet	4 stories in 60 feet	0—15 in the UZO, 0—80 outside of the UZO
CS-A, CS-A-NS	None	Doesn't apply	0.60	0.90	20	None req.	3 stories in 45 feet	15 feet	4 stories in 60 feet	0—15 in the UZO, 0—80 outside of the UZO

Note 1: The area of any parcel dedicated as right-of-way as part of a related development process may be used to calculate FAR or density for the applicable property. No maximum FAR applies to multi-family developments in the RM9-A and RM9-A-NS thru RM40-A and RM40-A-NS and OR20-A, OR20-A-NS, OR40-A, OR40-A-NS, ORI-A, ORI-A-NS districts.

Note 2: Within the urban zoning overlay district, any attached townhomes or rowhouses with alley access to required off-street parking, may have a zero-foot side setback (1) on internal lot lines between units, or (2) where the side of a unit is adjacent to an area having a minimum width of ten feet that is shown on the final site plan as an open space area or a required landscape buffer yard, provided that each unit has a private yard and no more than eight units are contained in any single-structure.

Note 3: Alternative zoning districts shall have the following standards apply to the location of a building and its associated parking:

a. Sidewalks shall be constructed to the standard of the Major and Collector Street Plan or, if on a local street, to local street standards. The build-to zone for alternative zoning districts shall be measured from the Standard right-of-way line as established by the table entitled "Standard Street Right-of-Way Widths" in the Major and Collector Street Plan. Streets included in the Major and Collector Street Plan are not eligible for the in-lieu fee in Section 17.20.120.D.

b. A parcel located at the intersection of two public streets shall have a building occupy the corner of the parcel that is bounded by the two intersecting public streets subject to the "Notes" of this table, which apply to both frontages.

c. A primary entrance to the building shall be located along the building façade within the build-to zone.

d. Street Level Parking Decks. Parking decks located at street level shall have no less than seventy-five percent of the lineal street frontage devoted to office or nonparking commercial uses, or in districts that only permit residential uses, residential uses at a minimum depth of twenty feet. A minimum of fifty percent of that wall area shall be glazed. That floor area shall be excluded from the calculation of floor area ratio.

e. The zoning administrator may allow necessary adjustments to the build-to zone when existing utilities or utility easements are within the build-to zone and unusual circumstances require that the utilities cannot be relocated or easements reduced. Upon allowing an adjustment to the build-to zone, the zoning administrator may also allow adjustments to the rear setback and landscape buffer yard as

authorized by Table 17.24.230, to provide for a necessary building area. The zoning administrator may allow necessary adjustments to the build-to zone, rear setback and landscape buffer yard based on the nature of the existing and future land uses and site conditions in the general vicinity after receiving a written recommendation from the planning department and any relevant department or agency.

f. For first floor residential uses, a minimum raised foundation of 18—36" is required.

g. Glazing on the first floor of any public street frontage shall be a minimum of forty percent for nonresidential uses and a minimum of twenty-five percent for residential uses. Glazing on the upper floors of any public street frontage shall be a minimum of twenty-five percent.

h. In the UZO:

i. Where an improved alley exists, primary vehicular access shall be taken from the alley.

ii. Any unimproved alley abutting the property that would provide direct access to an improved alley or street shall be constructed as the primary vehicular access.

iii. A parcel that is sixty feet wide or greater shall have the front facade of the building extend across at least sixty percent of the parcel's frontage.

iv. A parcel less than sixty feet wide shall have the building's front facade extend across the full width of the parcel in mixed-use, office and commercial districts.

v. If an improved alley is not present or required, an opening of up to twenty-six feet wide shall be permitted, regardless of the requirements of subsections iii and iv above.

vi. Parking shall be permitted only at the sides and rears of buildings.

i. Outside of the UZO:

i. The front facade of the building shall extend across at least forty-five percent of the parcel's frontage or the building front façade shall be at least twenty-five feet in width, whichever is greater.

ii. A maximum of one module of parking (two rows and a drive aisle) shall be permitted between the building and the street.

(Amdts. A, B, D to Ord. BL2025-1006 § 2(Exh. A), 2025; Ord. BL2025-1006 § 2(Exh. A), 2025; Ord. BL2025-1005 § 1(Exhs. A, C—E), 2025; Ord. BL2021-796 §§ 1—5, 2021; Ord. BL2019-111 § 1(Exh. A, §§ 7—15), 2020; Ord. BL2017-684 § 1, 2017; Ord. BL2015-1153 §§ 4, 12, 13, 15, 2015; Ord. BL2014-770 § 2, 2014; Ord. BL2013-567 § 1, 2013; Amdt. 1 to Ord. BL2012-183 §§ 1, 3, 2012; Ord. BL2012-183 §§ 1—3, 2012; Ord. BL2011-27 § 1, 2011; Ord. BL2011-898 §§ 7, 11, 2011; Ord. BL2009-586 § 1(Exh. A, §§ 10—14), 2010; Amdt. 1 to Ord. BL2006-1047, § 1, 2006; Ord. BL2006-1047 § 1, 2006; Ord. BL2006-971 §§ 2, 4, 2006; Ord. BL2005-762 § 4, 2005; Amdt. 2 to Ord. BL2005-712, 2005; Amdt. 1 to Ord. BL2005-712, 2005; Ord. BL2005-712 § 1, 2005; Ord. 2002-1010 § 1, 2002; Ord. BL2001-675 § 1 (part), 2001; Ord. BL2000-364 § 1 (part), 2000; Ord. 99-1641 § 1, 1999; Amdt. 1 with Ord. 99-1617 § 1, 1999; Ord. 99-1615 § 1 (part), 1999; Ord. 98-1268 § 1 (part), 1998; § 1(5), (6) of Amdt. 1 with Ord. 96-555 § 3.2, 1997)

17.12.030 Street setbacks.

A. Measurement: For single and two-family lots the street setback shall be measured from the street right-of-way line. For multi-family and non-residential districts and non-residential uses in the R/R-A, RS/RS-A, AR2a and AG districts the minimum street setback shall be measured from the Standard right-of-way line as established by the table entitled "Standard Street Right-of-Way Widths" in the Major and Collector Street Plan.

B. Street Classifications. All street classifications are as established in the "Subdivision Regulations of the Metropolitan Government of Nashville and Davidson County" and the "Major and Collector Street Plan" as adopted by the metropolitan planning commission.

C. Street Setbacks.

1. The minimum setback of a structure from an adjacent street shall be established by the following tables according to the zoning of the property and the classification of the street.

2. When the rear setback of a corner lot is oriented towards the rear setback of a neighboring lot, the required street setback along the street common to those two lots may be reduced by fifty percent. A corner residential lot created by plat prior to the effective date of the ordinance codified in this chapter may reduce the required setback of Table 17.12.030A by fifty percent along that street running parallel with the side of the residential structure. Lots zoned R20, RS20, R30, RS30, R40, RS40, R80, and RS80 shall be excluded from this subsection C.2 and shall provide the full required street setback of Table 17.12.030A for both streets; detached two-family residential uses within these zoning districts shall provide the full required contextual street setback for both streets.

3. In residential areas with an established development pattern the following standards shall apply:

a. The minimum required street setbacks for the R, RS and MHP districts shall be the average setback of the four nearest single-family or two-family houses on the same block face that are oriented to the same street and that follow the established development pattern.

b. When there are fewer than four single-family or two-family houses on the same block face that are oriented to the same street and that follow the established development pattern, then the minimum required street setback shall be the average setback of all single-family or two-family houses on the same block face that are oriented to the same street and that follow the established development pattern.

c. The existence of an established development pattern shall be determined by the zoning administrator who has the discretion to exclude any property that has a setback disproportionate to the other houses on the block face.

d. When there are no other single-family or two-family houses on the same block face, oriented to the same street and that follow the established development pattern, then the value provided in Table 17.12.030A shall determine the setback.

e. In the MUN and MUL districts, the average street setback of existing structures along the same block face may be applied to new construction on that block, if determined appropriate by the zoning administrator to maintain or reinforce an established form of character of development.

4. When a subdivision plat establishes a reservation of land for future right-of-way acquisition, the street setback shall be measured from the ultimate right-of-way line.

5. Double frontage lots are subject to the provisions of Section 17.24.060(B). Property abutting a street designated as a scenic arterial by the major street plan shall comply with the provisions of Section 17.24.070.

6. The front facade of a principal structure on a corner lot that has lot lines of unequal length abutting the streets shall be oriented to the shorter lot line, except where the zoning administrator determines that the longer lot line is more appropriate based on one or more of the following criteria:

a. The longer lot line of a lot zoned for office, mixed-use, commercial, or industrial use is located along an arterial street as shown on the adopted major street plan;

b. The proposed structure will contain multiple businesses with outside entrances;

c. The predominant character or pattern of adjoining development is or will be oriented to the street on which the longer lot line is located.

d. The previous principal structure on a residential lot was oriented to the street on which the longer lot line is located.

7. The front facade of all single-family principal structures constructed within the RS20, RS15, RS10, RS7.5, RS5, RS3.75, R20, R15, R10, R8, and R6 zoning districts shall face a public or private street unless the property is within a redevelopment district or zoning overlay that specifically includes a design review process to evaluate the appropriateness of an individual alternative front facade location.

Table 17.12.030A

STREET SETBACKS FOR SINGLE AND TWO-FAMILY STRUCTURES

Zoning Districts	Minor-Local and Local Streets	All[2] Other Streets
AG, AR2a, RS80, R80, RS40, R40	40 feet	40 feet
RS30, R30, RS20, R20, RS15, R15, RM2, RM2-NS	30 feet	40 feet
RS10, R10, R8, R8-A, RS7.5, RS7.5-A, R6, R6-A, RS5, RS5-A, RS3.75, RS3.75-A, MHP, RM4 and RM4-NS through RM60 and RM60-NS, MUN, MUN-NS, MUL, MUL-NS, MUG, MUG-NS, MUI, MUI-NS, ON, OR20, OR20-NS, OR40, OR40-NS, ORI, and ORI-NS	20 feet[1]	40 feet
SP	Street setbacks shall be as specifically listed in the site specific SP ordinance	
DTC	See Chapter 17.37	
RM9-A and RM9-A-NS through RM100-A and RM100-A-NS, MUN-A, MUN-A-NS, MUL-A, MUL-A-NS, MUG-A, MUG-A-NS, MUI-A, MUI-A-NS, OR20-A, OR20-A-NS, OR40-A, OR40-A-NS, ORI-A, ORI-A-NS	5 feet	5 feet

[1] Two-family dwellings with any parking proposed between the street line and the front edge of the residential structure shall provide a minimum street setback of thirty feet.

[2] Lots having vehicular access to these streets shall develop in a manner which avoids back-up movements into the public street.

Table 17.12.030B

STREET SETBACKS FOR MULTI-FAMILY AND NON-RESIDENTIAL DISTRICTS; AND NON-RESIDENTIAL USES IN AG, AR2A, R/R-A AND RS/RS-A DISTRICTS

	AG—RM15, RM15-NS	RM20, RM20-NS, RM40, RM40-NS	ON, OL, OG, OG-NS, OR20, OR20-NS, OR40, OR40-NS	RM60, RM60-NS, MUN, MUN-NS, MUL, MUL-NS, MUG, MUG-NS, ORI, ORI-NS	CN, CN-NS, CN-A, CN-A-NS, SCN, SCN-NS, SCC, SCC-NS, SCR, SCR-NS	CL, CL-NS, CL-A, CL-A-NS, CS, CS-NS, CS-A, CS-A-NS, CA, CA-NS	IWD, IR, IG	CF, CF-NS, MUI, MUI-NS	DTC
Setback	40	30	20	10	20	15	5	0	See Ch. 17.37

Note 1: SP Districts. Street setbacks shall be as specifically listed in the site specific SP ordinance.

Note 2: Properties abutting a street designated as a scenic arterial by the Major and Collector Street Plan shall comply with the provisions of Section 17.24.070. This note shall not apply to the DTC district.

Note 3: In no event shall any street setback provisions permit a principal building to be constructed within an area designated for street improvements on a major street plan adopted subsequent to the effective date of this note.

Note 4: The above street setback standards shall not apply within the Alternative Zoning Districts.

Note 5: For attached housing developed under Section 17.12.110, the minimum street setback shall be three feet from the right-of-way line but shall not vary by more than 20 percent from the standards set in Section 17.12.030.C(3). This note shall not apply to the DTC district.

Note 6: Within the urban zoning overlay district, any proposed development that does not meet the setback standards within this table may apply for a special exception as provided in Sections 17.12.035.A and 17.12.035.D. This note shall not apply to the DTC district.

(Ord. BL2024-346 § 2, 2024; Amdt. 1 to Ord. BL2023-1691 § 1, 2023; Ord. BL2023-1691 §§ 1, 2, 2023; Amdt. 1 to Ord. BL2022-1270 § 1, 2022; Ord. BL2022-1270 § 1, 2022; Ord. BL2019-111 § 1(Exh. A, §§ 16, 17), 2020; Ord. BL2015-1153 §§ 15, 16, 2015; Ord. BL2014-725 § 1, 2014; Ord. BL2011-898 §§ 8, 9, 2011; Ord. BL2011-897 §§ 5—10, 2011; Ord. BL2009-586 § 1(Exh. A, §§ 15, 16), 2010; Amdt. 1 to Ord. BL2006-1047, § 2, 2006; Ord.

BL2006-1047 § 2, 2006; Ord. BL2006-971 § 3, 2006; Ord. BL2005-762 §§ 5, 6, 2005; Ord. 2002-1013 § 1, 2002; Amdt. 1 with Ord. 2002-1012 § 1, 2002; Ord. 2001-858 § 1, 2001; Ord. BL99-117 § 1 (part), 2000; Ord. 98-1268 § 1 (part), 1998)

17.12.035 Street setbacks within the urban zoning overlay district.

A. This section establishes street setbacks within the mixed use, office, industrial, RM20, RM20-NS, RM40, RM40-NS, RM60, RM60-NS, or commercial zone districts for any property located within the urban zoning overlay district regardless of the minimum street setback requirements described in Tables 17.12.030A and 17.12.030B whenever one or more of the conditions listed below applies (1—4). However, in all districts, a principal or accessory structure may be located closer to the street or property line than as permitted by this section or by Tables 17.12.020B, 17.12.020C, and 17.12.030B based on the review and approval of a Special Exception by the Board of Zoning Appeals as provided in [subsection] 17.12.035.D below. The standards of this subsection shall not apply within the alternative zoning districts.

1. The setback of a principal building, fronting the same street, that is located on an abutting lot or a lot separated by an intervening public street or alley does not meet the minimum requirements of Tables 17.12.030A or 17.12.030B;

2. In the case of a corner lot, the setback of a principal building located on any other corner lot at the same street intersection does not meet the minimum requirements of Tables 17.12.030A or 17.12.030B;

3. In the case of a corner lot, there is no principal building located on any other corner lot at the same street intersection;

4. Two-thirds or more of the principal buildings located along the same or opposite block face do not meet the minimum requirements of Tables 17.12.030A or 17.12.030B; or

5. The owner of one or more contiguous lots that collectively include at least one corner lot and at least fifty percent or more of the street frontage along either block face furnishes the zoning administrator a written request to use the contextual street setback requirements.

B. The determination of the appropriate street setbacks within mixed use, office, industrial, RM20, RM20-NS, RM40, RM40-NS, RM60, RM60-NS, or commercial zone districts located within the urban zoning overlay district shall be made by following the criteria as outlined in subsection C of this section. For the purposes of this section, lots that are sixty feet wide or greater shall have the front façade of the building extend across at least twenty-five percent of the lot frontage or be at least twenty-five feet in width, whichever is greater. Lots that are less than sixty feet wide shall have the building extend across the full width of the lot in mixed use and commercial districts unless a driveway is required to access required parking, except that one or two family dwellings may have side yards a minimum of three feet in width. If a driveway is needed for service to accessory parking, an opening of up to twenty-six feet wide shall be permitted. Parking shall be permitted only at the sides and rears of buildings, and at the fronts of the buildings to the extent shown in Figure 17.12.035. A primary entrance to the building shall be located at the front setback line. The front façade may have projections and recesses to accommodate columns, entrances, covered patios, and similar features. The standards of this subsection shall not apply within the alternative zoning districts.

C. The following criteria shall be used to determine the street setback, as applicable. The standards of this subsection shall not apply within the alternative zoning districts.

1. If the site is within a zoning overlay district, redevelopment district or an area having a design plan adopted by metropolitan council that includes a master plan or design guidelines for the placement of buildings at this location such guidelines shall apply.

2. If the site is not within an area having an adopted design plan, master plan or design guidelines and the building types and setbacks of existing buildings are characteristic of development under a different zoning district than what the property is currently zoned and that implementation of the current zoning will change the development character within the district (e.g., the existing development is one- or two-family dwellings and the zoning is for multi-family dwellings), then the setbacks from Section 17.12.030 (Street Setbacks) shall apply.

3. If neither subsection (C)(1) nor (C)(2) applies, then the site shall comply with these contextual setback provisions. Setbacks shall be determined as follows:

a. Use of buildings and site features as context:

i. Consistency with like building type. Lots with buildings of the same building type as proposed are to be used as the contextual basis for street setbacks. Lots with buildings of a different building type are not to be

used as the contextual basis for street setbacks unless it can be demonstrated that the pattern of setbacks for both building types is fundamentally the same within a radius of five hundred feet. Civic buildings are not to be used as the contextual basis for street setbacks of non-civic buildings. Likewise, non-civic buildings are not to be used as the contextual basis for civic buildings.

ii. The determination of the appropriate street setback may take into account the presence of recorded easements or utility obstructions that prevent meeting any of the criteria above.

b. Contextual criteria:

i. Street setbacks shall be consistent with the predominant pattern of street setbacks of pre-1950 buildings (built before 1950) located within a distance of three lot widths along both sides of the same or intersecting street frontages, as applicable. If the predominant pattern is consistent with the setback requirements of the base zoning district, then Table 17.12.030A or Table 17.12.030B shall apply as applicable.

ii. If the lot is a corner lot, street setbacks shall be consistent with the street setbacks of any pre-1950 building that previously occupied the same corner lot. If that information is not available, street setbacks shall be consistent with the street setbacks of any pre-1950 building located on any of the other corner lots at the same intersection.

iii. If there are no pre-1950 buildings located on adjacent or nearby lots, street setbacks shall be consistent with the pattern of street setbacks shown at that location on record maps dating from 1950 or earlier.

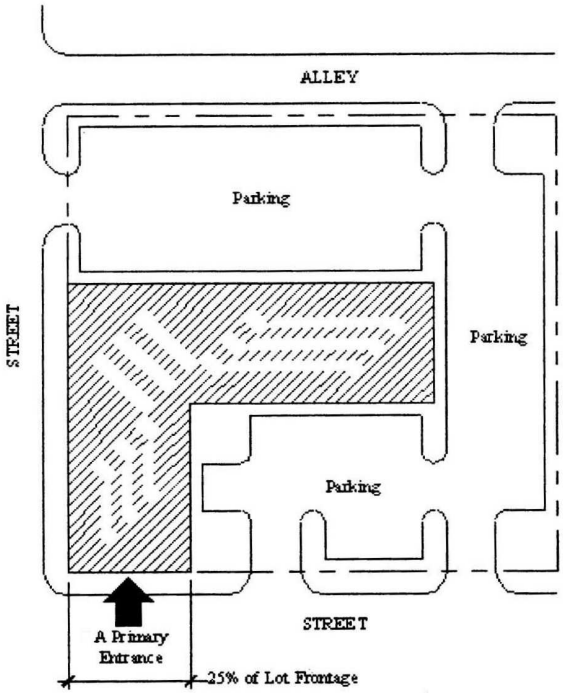
D. Special Setback Regulations for All Uses (Excluding Single-Family and Two-Family Dwellings) Within the Urban Zoning Overlay District:

1. In all districts, a principal or accessory structure may be located closer to the street or property line than as permitted by this section or by Tables 17.12.020B, 17.12.020C, and 17.12.030B based on the review and approval of a Special Exception by the Board of Zoning Appeals.

2. An applicant shall provide evidence to the board as provided in Section 17.12.060.F.3 that the proposed building setbacks shall not create an adverse impact on adjacent properties nor detract from a strong pedestrian-friendly environment.

3. The board shall consider a recommendation from the historic zoning commission and planning commission as provided in Section 17.12.060.F.4. (Ord. BL2019-111 § 1(Exh. A, § 18), 2020; Ord. BL2011-898 § 10, 2011; Amdt. 1 to Ord. BL2006-1047, §§ 3, 4, 2006; Ord. BL2006-1047 §§ 3, 4, 2006; Ord. BL2004-221 § 1 (part), 2004)

Figure 17.12.035



17.12.040 Other setbacks.

Within the DTC zoning district, see Chapter 17.37 for permitted encroachments into setback areas.

A. Railroads. In the IWD, IR and IG districts, no side or rear setback shall be required along a lot line adjacent to an operative railroad track.

B. Setbacks for Irregular-Shaped Lots. Wherever a lot is of such irregular shape that the setback provisions cannot be readily applied, the zoning administrator shall interpret the application of the setback provisions.

C. Party Walls. The side setback requirements may be waived when attached dwelling units are subdivided for sale along common party walls in the RM and mixed-use districts.

D. Building Separation. In the RM districts the minimum distance between two buildings on the same lot shall be ten feet or the minimum required by the building code, whichever is greater.

E. Permitted Setback Obstructions. The following structures or building components may be located within required setbacks. Except for screening walls, fences and hedges, the following features shall not be permitted within a required landscape buffer yard.

1. Accessory buildings.

a. Accessory buildings outside of the RN1, RN2, RL1, RL2, and RL3 zoning districts with a footprint of eight hundred fifty square feet or less and located to the

rear of a principal structure shall provide a minimum side setback equal to one-half of that required for the zoning district, but not less than three feet, and a minimum rear setback of at least three feet, except when garage doors or carport openings face or open directly to an alley, in which case the minimum rear setback shall be ten feet. Accessory buildings outside of the RN1, RN2, RL1, RL2, and RL3 zoning districts with a footprint of more than eight hundred fifty square feet shall provide the full setbacks of the zoning district;

b. Above ground swimming pools or in-ground swimming pools that extend more than twelve inches above ground level and are located to the rear of a principal structure shall provide a minimum side setback equal to one-half of that required for the zoning district, but not less than three feet. In-ground swimming pools that extend above ground level less than twelve inches shall provide a minimum setback of three feet;

2. Arbors and trellises;

3. Awnings, patio covers, or canopies projecting not more than six feet from a building wall over a required setback;

4. Chimneys projecting not more than three feet into the required setback, and not exceeding two percent of the overall setback area provided that a minimum setback of three feet to any property line shall be provided;

5. Clothes poles or clothes lines in rear setbacks of residential districts;

6. Within the urban zoning overlay district, covered or enclosed porches, between thirty inches and eight feet in height above grade, in the side and rear setback areas (but not closer than three feet from the property line);

7. Curbs and sidewalks;

8. Eaves, gutters or downspouts, projecting into or over required yards not more than twenty-four inches;

9. In nonresidential districts, elevated pedestrian walkways that cross lot lines or public ways;

10. Fire escapes or staircases, the riser of which shall be at least fifty percent open, subject to the following conditions:

a. In residential districts the encroachment may be up to three feet into the required yard as long as a minimum setback of two feet from the property is maintained,

b. In mixed-use and nonresidential districts, the total area of stairway coverage shall not exceed thirty percent of the area of such required yard;

11. Flagpoles having only one structural ground member;

12. Fountains;

13. Heating, ventilation and air conditioning units (including compressors and condensers) for single-family or two-family dwellings, provided exhaust air is directed vertically or otherwise away from the adjacent property line;

14. Mailboxes;

15. Open terraces, including natural plant landscaping;

16. Open, uncovered stoops, including handicap ramps;

17. For single family or duplex uses, parking spaces for the handicapped;

18. Recreational equipment in the rear setback in residential districts;

19. Sculpture or other similar objects of art;

20. Signs, subject to the provisions of Chapter 17.32;

21. Steps to the principal entrance and necessary landings, together with a railing no more than three feet high, and extending no more than six feet into the setback;

22. Street furniture such as benches, drinking fountains, trash receptacles (not dumpsters), ash trays, light standards or directional signs. Dumpsters may encroach on the required rear setback;

23. In-ground swimming pools extending twelve inches or less above ground level in side or rear setback areas;

24. Trees, shrubs, flowers, hedges or other features of natural growth;

25. Vehicular parking areas and associated driveways, except within landscape buffer yards or within the required street setback of the MUN, MUN-NS, MUL, MUL-NS, OR20, OR20-NS and OR40 districts;

26. Screening Walls or Fences. The maximum permitted height measured from finish grade level on the side of the wall or fence with the greatest vertical exposure shall be:

a. Two and one-half feet in height within ten feet of a street right-of-way. Open fences, such as chain link or those of a similar nature are permitted to be six feet in height. Electric fences are permitted only within the IWD, IR and IG districts and shall be no more than ten feet in height, subject to the provisions of Section 16.04.200,

b. Six feet in height within the remainder of the required front setback. Electric fences are permitted only within the IWD, IR and IG districts and shall be no more than ten feet in height, subject to the provisions of Section 16.04.200,

c. Eight feet in height within the required side or rear setback or within any platted common open space. Electric fences are permitted only within the IWD, IR and IG districts and shall be no more than ten feet in height, subject to the provisions of Section 16.04.200;

27. An uncovered deck that is located at least ten feet from the rear property line, does not encroach on required side setbacks and has a maximum deck elevation no greater than the average finished first floor elevation of the principal building as established by the front entrance;

28. Wells;

29. Utility transmission lines and associated structures, such as poles, provided that electric utility meters shall not be permitted in the required street setback unless expressly required by the power supplier for safety and access purposes;

30. Satellite dishes not exceeding eighteen inches in diameter; and,

31. Yard and service lighting fixtures and poles.

32. Covered front porches in residential districts extending no more than six feet into the required street setback, provided that the following are met:

a. The porch shall not be enclosed,

b. There shall be no enclosed space above the porch or enclosed habitable space below the porch,

c. The porch shall be located at least ten feet from the right-of-way.

F. Reserved. (Ord. BL2025-1007 § 3, 2025; Ord. BL2025-1005 § 1(Exh. A), 2025; Ord. BL2023-79 §§ 1, 2, 2024; Ord. BL2022-1581 § 1, 2023; Ord. BL2022-1346 § 3, 2022; Ord. BL2019-111 § 1(Exh. A, § 19), 2020; Ord. BL2017-898 §§ 1—3, 2017; Ord. BL 2009-586 § 1(Exh. A, § 17), 2010; Ord. BL2006-1283 § 3, 2007; Ord. BL2006-1087 § 2, 2006; Ord. BL2005-650 § 1, 2005; Ord. 2002-1015 § 1 (part), 2002; Ord. 2000-364 § 1 (part), 2000; Ord. 98-1268 § 1 (part), 1998; amended during 2-98 supplement; Ord. 96-555 § 3.4, 1997)

17.12.050 Accessory building floor area controls.

A. On all lots with a size of less than forty thousand square feet, the building coverage of an accessory structure other than a detached accessory dwelling unit located to the rear of the principal dwelling and complying with the district setbacks shall be limited to eight hundred fifty square feet or fifty percent of the building coverage of the principal dwelling, whichever is greater, but in no case shall exceed two-thousand five-hundred square feet. For regulations pertaining to detached accessory dwelling units, see Section 17.16.030.G.

B. These floor area controls shall not apply to accessory structures proposed on lots where agricultural activities and domestic animals/wildlife are permitted. (Ord. BL2025-1007 § 4, 2025; Ord. BL2005-650 § 1, 2005; Ord. 2002-1015 § 1 (part), 2002)

17.12.060 Building height controls.

A. Height Controls Established. No building or other structure shall penetrate the height control plane except as permitted by this section. Height controls shall be imposed from:

1. All setback lines in AG, AR2a and residential districts;

2. All street setback lines in nonresidential districts;

3. The boundary between an AG, AR2a, RS and RS-A, R and R-A, RM or MHP district and a nonresidential district;

B. Special Height Regulations for Accessory Structures outside of an Accessory Structure Overlay District.

1. On all lots with a lot size less than forty thousand square feet, accessory structures other than detached accessory dwelling units shall not exceed one story or sixteen feet in height.

2. On all lots with a lot size of at least forty thousand square feet, accessory structures other than detached accessory dwelling units located to the rear of the principal dwelling may be two stories or twenty-four feet in height provided that the full side and rear setbacks required by the applicable district are provided.

3. If not established in historic overlay districts, the zoning administrator shall establish height regulations based upon the recommendation of the historic zoning commission.

C. Special Height Regulations for Accessory Structures Within the Urban Zoning Overlay District.

1. On all lots with a size less than forty thousand square feet, an accessory structure other than a detached accessory dwelling unit located to the rear of the principal dwelling may have vertical walls rising no higher than sixteen feet from the side and rear setback lines. The roof on the structure shall rise from the side walls at a roof pitch no steeper than the predominant roof pitch of the principal dwelling, except that the vertical walls may extend to the underside of the roof at the gable end of a gabled roof. The top elevation of an accessory structure shall not exceed the top elevation of the principal dwelling.

2. On all lots with a lot size of at least forty thousand square feet, an accessory structure other than a detached accessory dwelling unit located to the rear of the principal dwelling may have vertical walls rising no higher than twenty-four feet in height exclusive of a

pitched roof, provided that the full side and rear setbacks required by the applicable district are provided. The top elevation of an accessory structure shall not exceed the top elevation of the principal dwelling.

3. If not established by the design standards of an historic overlay district, the zoning administrator shall establish height regulations based upon the recommendation of the historic zoning commission.

D. Special Height Regulations for Design-Based Multi-Family Districts.

1. Design-Based Multi-Family Districts subject to the provisions of Chapter 17.38.

E. Permitted Height Obstructions. In the mixed-use and nonresidential districts, the following structures shall be exempt from the height control standards of this section.

1. On-premises signs subject to the provisions of Chapter 17.32;

2. Chimneys or flues;

3. Elevator or stair bulkheads, roof water tanks, or cooling towers;

4. Flagpoles;

5. For religious institutions, ornamental towers, spires or belfries having no floor area within that portion of the tower exceeding the height limit or penetrating the height control plane;

6. Parapet walls not more than four feet high.

F. Special Height Restrictions Along Highways Designated Scenic Under T.C.A. Section 54-17-101 et seq.

1. For purposes of this subsection D, the following terms shall have the meanings shown:

a. "Coverage area" means the total surface area proposed to be covered by a structure.

b. "Natural elevation" means the average elevation of the coverage area prior to grading, to be computed by dividing the sum of the elevations of points taken at twenty-five foot intervals around the perimeter of the coverage area by the total number of such points.

c. "Measuring segment" means the full segment of scenic highway abutting the property on which the building is to be built.

d. "Measuring segment elevation" means the average elevation of the measuring segment, to be computed by dividing the elevations of points taken along the centerline of the measuring segment at twenty-five foot intervals divided by the total number of such points.

e. "Maximum building height" means the difference between the maximum elevation of a building, including any object to be affixed thereto, and the natural elevation.

2. The "maximum building height" of any building to be built within three hundred feet of, and on a parcel of property abutting, a road designated a scenic highway by Tenn. Code Ann. Section 54-17-101 et seq., as amended, shall not exceed the following:

a. For a building site having a natural elevation lower than the measuring segment elevation, maximum building height shall be no more than thirty-five feet higher than the measuring segment elevation.

b. For a building site having a natural elevation higher than the measuring segment elevation, maximum building height shall be no more than thirty-five feet higher than the natural elevation.

G. Special Height Regulations for All Uses (Excluding Single-Family and Two-Family Dwellings) Within the Urban Zoning Overlay District, but not including the DTC district:

1. In all districts, a principal or accessory structure may exceed the maximum height at the setback line and/or penetrate the height control plane as shown in Tables 17.12.020B and 17.12.020C, or the maximum height in the build to zone for thirty percent of the façade fronting each public street and/or the maximum heights specified in Table 17.12.020D, based on the review and approval of a Special Exception by the board of zoning appeals.

2. The top elevation of an accessory structure shall not exceed the top elevation of any principal building or structure located within the development.

3. An applicant shall provide evidence to the board that the proposed building height shall not create an adverse impact on air, light, shadow, or wind velocity patterns due to the configuration of the building relative to the maximum permitted height standards (including height control plane) and its juxtaposition to, and with, existing structures in the vicinity, or approved, but not yet built structures. In addition, the applicant shall demonstrate that the proposed building height contributes to, and does not detract from, a strong pedestrian-friendly streetscape.

4. The board shall consider a recommendation from the historic zoning commission, if the property is located within an historic overlay district, and a recommendation from the planning commission as provided in Section 17.40.300. The planning commission shall recommend on the proposed development's consistency with the goals, objectives and standards of any redevelopment district as well as the general plan, including any community, neighborhood or other design plan. (Ord. BL2025-1006 §§ 3, 4, 2025; Ord. BL2025-1005 § 1(Exh. A), 2025; Ord. BL2022-1346 § 4, 2022; Ord. BL2015-1153 §§ 16, 17, 2015; Ord. BL2015-1053 § 1, 2015; Ord. BL2012-183 § 4, 2012; Ord. BL2007-1431 § 1,

2007; Amdt. 1 to Ord. BL2006-1047, § 5, 2006; Ord. BL2006-1047 § 5, 2006; Ord. 2002-1015 § 1 (part), 2002; Amdts. 2, 8 with Ord. BL2000-364 § 1 (part), 2000; Amdt. 1 with Ord. BL2000-317 § 1, 2000; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; § 1(9) of Amdt. 1 with Ord. 96-555 § 3.5, 1997)

17.12.070 Special floor area ratio (FAR) provisions.

A. Plazas/Arcade Bonus. For properties located within the MUI, MUI-NS, MUI-A, MUI-A-NS district, a floor area development bonus is offered in return for the design and construction of pedestrian plazas and/or arcades that are accessible to the general public. Two categories of bonuses are offered to the property owner:

1. Design Plan Plaza/Arcade Bonus. A property owner electing to construct a pedestrian plaza or arcade in strict accordance with the design standards established by an Urban Design Overlay district shall derive the following increase in building floor area based on each square foot of plaza or arcade area provided.

District	Bonus Floor Area (in sq. ft.)
MUI, MUI-NS, MUI-A, MUI-A-NS	Plaza: 6.0
	Arcade: 3.0

2. Standard Plaza/Arcade Bonus. Properties not specifically designated by an urban design overlay district as qualifying for plaza and/or arcade bonuses under the provisions of subdivision (1) of this subsection, also may elect to provide a plaza and/or arcade in return for a floor area development bonus.

a. For qualifying plazas and arcades, the provision of one square foot of plaza or arcade area shall yield the following increase in developable floor area:

District	Bonus Floor Area (in sq. ft.)
MUI MUI-NS, MUI-A, and MUI-A-NS	Plaza: 3.0
	Arcade: 3.0

b. Design Criteria. To qualify for a standard plaza/arcade floor area bonus, the following design criteria shall be satisfied:

i. Plazas.

(A) The plaza shall provide a minimum depth of ten feet from the adjacent street and a minimum area of five hundred square feet.

(B) The floor of the building located at plaza level shall provide individual establishments such as restaurants or retail sales that open directly to the plaza. Up to fifty percent of the plaza area may be utilized as a sidewalk cafe.

(C) When feasible, pedestrian linkages shall be provided to plazas located on adjacent lots.

ii. Arcades.

(A) The arcade shall provide a minimum height of twenty-five feet and a minimum area of five hundred square feet.

(B) The arcade shall be located within five feet of the average level of the street. The floor of the building located at arcade level shall provide individual establishments such as restaurants or retail sales that open directly to the arcade.

B. Residential Bonus in the MUN and MUL Zoning Districts.

1. For property located within the urban zoning overlay district and within the MUN, MUN-NS, MUN-A, MUN-A-NS, MUL, MUL-NS, MUL-A, and MUL-A-NS zoning district, in any building where at least twenty-five percent of the floor area (exclusive of parking) is designed and constructed for residential occupancy, a bonus value of 1.0 may be applied to the permitted FAR of the zoning district. This bonus floor area shall be utilized for residential uses only. This bonus floor area shall not be combined with any other bonus allowed under this section or Section 17.36.090.

2. In any development that uses the floor area bonus of this section, the following uses shall be prohibited from the development:

a. Short term rental property — Owner Occupied

b. Short term rental property — Not Owner Occupied

C. Exemption in the MUI, MUI-NS, MUI-A, MUI-A-NS District. In the MUI, MUI-NS, MUI-A, and MUI-A-NS district, leasable space that is located at street level with a minimum depth of twenty feet, which is occupied by uses that have individual access to the street such as, but not limited to, either a bar, restaurant or retail use, shall be excluded as floor area for the purpose of calculating floor area ratio. A minimum of fifty percent of each storefront shall be glazed window area. Also excluded as floor area:

1. Below grade parking; and

2. Above grade parking decks of flat plate type construction that provide no less than twelve feet floor to ceiling clearance and have architectural cladding.

D. Parking Exemptions. In all districts the floor area used for the provision of off-street parking spaces or loading berths (and the driveways and maneuvering aisles for those spaces and berths) shall not be counted as floor area for the purpose of calculating floor area ratio when such spaces or berths are used to satisfy the parking demands for the principal use(s) on the parcel. When no parking is required, provision of off-street parking spaces shall not be counted as floor area for the

purpose of calculating floor area ratio when such spaces or berths do not exceed the parking maximum set by the UZO District standard in Table 17.20.030.

E. Street Level Parking Decks in the MUG, MUG-NS, ORI, ORI-NS, MUI, and MUI-NS Districts. Regardless of whether other special floor area ratio (FAR) provisions in this section are utilized, parking decks located at street level shall have no less than seventy-five percent of the lineal street frontage devoted to office or nonparking commercial uses at a minimum depth of twenty feet. A minimum of fifty percent of that wall area shall be glazed. That floor area shall be excluded from the calculation of floor area ratio.

F. Parking Garage Liner Buildings. Within the CF, CF-NS, ORI, ORI-NS, ORI-A, ORI-A-NS, and all mixed-use districts, parking garages fronting a public street or public space may be masked by a liner building that is a minimum of twenty feet deep. The floor area of any liner building shall be excluded from the calculation of the floor area ratio, provided the following requirements are satisfied:

1. The first twenty feet of depth of the liner building shall be occupied by office, residential, or other non-parking commercial uses.

2. For non-residential uses on the first floor, a minimum of forty percent of the front facade of the first floor shall be clear or lightly tinted windows and doors. The first floor transparent glazing area calculation shall be measured from the finished grade at the setback to the finished floor elevation of the second floor, or to a height of sixteen feet, whichever is less. Upper floors, regardless of use, shall have a minimum of twenty-five percent of glazing to be eligible for square footage calculation exemption.

3. For residential uses on the first floor, a minimum of twenty percent of the front facade of the first floor shall be openings. Openings shall be clear or lightly tinted windows or main entrance doors. The first floor opening area calculation shall be measured from the finished floor elevation of the first floor to the finished floor elevation of the second floor, or to a height of twelve feet, whichever is less. Upper residential floors shall have a minimum of twenty-five percent glazing to be eligible for square footage calculation exemption. Residential uses on the first floor shall have a minimum finished floor elevation one and one half feet above the finished grade at the setback.

The provisions of this subsection shall be enforced pursuant to the final site plan review procedures in Section 17.40.170. (Ord. BL2022-1412 § 1, 2022; Ord. BL2021-797 § 1, 2021; Ord. BL2019-111 § 1(Exh. A, § 20), 2020; Ord. BL2015-1153 § 5, 2015; Ord. BL2012-183 § 5, 2012; Ord. BL2009-586 § 1(Exh. A, §§ 18—25), 2010; Ord. BL2007-36 § 1, 2007; Ord. BL2007-1531 § 2, 2007; Ord. BL2006-975 § 1, 2006; Ord. 2002-1015 § 1 (part), 2002; Ord. BL2000-364 § 1 (part), 2000; Amdt. 1 (part) with Ord. 99-1754 § 4, 1999; Ord. 96-555 § 3.6, 1997)

17.12.080 Compact development.

A. Purpose and Intent. Compact development is a set of alternative zoning standards that may be utilized in the design of residential subdivisions. It is the purpose of this section to provide for the health and welfare of residents by creating the opportunity for a diversity of housing and recreational opportunities by creating usable open space and allowing for a mixture of residential lot sizes.

Applicability. Subdivisions proposed in the R/RS and R/RS-A zoning districts where less than ten percent of the site contains any, or a combination of, the natural areas as defined in Section 17.12.090 and meet one of the following standards may utilize the provisions of this section.

1. Proximal Option Minimum Site Area. Property located within 0.25 miles of any MCSP classified arterial or collector street shall have a minimum site area of no less than five times the minimum lot area for the base zoning district as established by Table 17.12.020A. For example, in the R10 district the minimum area for the subdivision would be fifty thousand square feet. (Ten thousand square feet minimum lot size times five.)

2. Distal Option Minimum Site Area. Property located more than 0.25 miles of any MCSP classified arterial or collector street shall have a minimum site area of no less than ten times the minimum lot area for the base zoning district as established by Table 17.12.020A. For example, in the R10 district the minimum area for the subdivision would be one hundred thousand square feet. (Ten thousand square feet minimum lot size times ten.)

B. Maximum Lot Yield. Eighty percent of the gross acreage shall be divided by the minimum lot size of the base zoning district to determine the maximum yield. For example, a one hundred thousand square foot RS5 zoned property shall only be permitted to have at most sixteen lots.

C. Design Flexibility. In order to accomplish the purpose of this section, flexibility in lot sizes may be proposed in exchange for the creation of open space on the site according to the following standards:

1. Utilization of the compact development shall result in the creation of open space. A minimum of fifteen percent of the site shall be placed in open space.

2. Lot Size Flexibility.

a. Subdivisions may reduce lots in size from the minimum required by the base zoning district an equivalent of two smaller zoning districts. For example, a subdivision in the R15 district may utilize the compact development standard to create lots equivalent in size to the R8 and R8-A district. In a similar fashion, a subdivision in the RS15 district may create lots equivalent in size to the RS7.5 and RS7.5-A district.

b. If additional usable open space is provided, beyond the minimum requirement, a subdivision may reduce the minimum lot size by an equivalent percentage beyond the two-zoning district reduction.

i. Subdivisions proposed in all R/RS districts where there are at least two smaller zoning districts, excluding RS7.5/RS7.5-A, RS5/RS5-A, and RS3.75/RS3.75-A may reduce their lot size no more than ten percent beyond the two-district district reduction with an additional dedication of ten percent useable open space (at least fifteen percent total useable open space), and shall be based on the reduced size zoning district. For example, if a subdivision in R10 utilizing the reduced lot size of the R6 district sets aside ten percent usable open space then the lot sizes may be reduced an additional five percent. The reduced lot size would be reduced from a minimum six thousand square feet lot to a minimum five thousand seven hundred square feet.

ii. Subdivisions proposed in R8/R8-A districts may reduce lots in size from the minimum required by the base zoning district by an additional equivalent percentage of the site that is in usable open space, with a maximum additional reduction of twenty percent. For example, a subdivision in a R8 district utilizing the R6 lot standards that dedicates an additional twenty percent useable open space (at least twenty-five percent total useable open space) may reduce the lot size to four thousand eight hundred square feet.

iii. Subdivisions in the R6/R6-A districts that have no district lot size reduction available, lots may be reduced in size by the equivalent percentage of the site that is in the open space, with a max reduction of thirty percent. For example, a subdivision in an R6 district dedicating an additional thirty percent useable open space (at least thirty-five percent total useable open space) may reduce lot size to four thousand two hundred square feet.

c. No lot shall be reduced to less than three thousand seven hundred fifty square feet.

3. Lots proposed for two-family dwellings shall meet the minimum lot size of the base zoning district (no reduction of lot area permitted) and shall comply with the standards of Section 17.16.030.D of this title.

4. Development in hillside and floodplain areas shall follow those standards as set out in Chapter 17.40.

5. Tree removal in a compact development shall follow the standards of Section 17.28.65 and Chapter 17.40.

6. The standards for the review of critical lots as provided in the adopted subdivision regulations shall apply.

7. The bulk standards and landscaping requirements of a comparable zoning district which most closely resembles the alternative lot sizes proposed for any given phase of development shall be employed for that phase of the subdivision, except for any standard that is addressed within this ordinance.

8. Perimeter lots that are reduced in size from the minimum lot size requirements required by the base zoning district and are abutting a conventional R/RS subdivision shall be required to utilize a twenty-foot standard B landscape buffer yard, unless located within the Urban Zoning Overlay, as per Chapter 17.24 Article III landscape buffer yard requirements. If the perimeter lots meet the minimum size of the base zoning district, no landscape buffer yard is required.

a. Landscape buffer yards shall be permitted within an access easement on individual lots, provided the easement connects to common open space that is accessible from the public right-of-way.

D. Open Space Standards. The required fifteen percent open space of a compact development may contain usable open space and stormwater features as required and described in this section.

1. Usable Open Space & Features. A minimum of five percent of a compact subdivision's total area shall be usable open space. One usable feature shall be installed for subdivisions containing between four and ninety-nine total residential units, plus an additional usable feature for every one hundred residential units, or portion thereof, in excess of the first ninety-nine units. Usable features shall not be located in regulatory no-disturb stormwater buffers or floodway as determined by metro water services. Any usable feature proposed to be located in floodplain shall not be fenced or contain impervious surfaces. Usable features, as approved by the Planning Commission or their designee, may include but are not limited to:

a. Paved greenway trails or trailhead facilities identified in the Metropolitan Parks and Greenways Master Plan and located within publicly accessible greenway conservation easements to the benefit of the Metropolitan Greenways Commission or Metro Parks;

b. Walking or bicycle trails;

c. Reflective, passive recreation areas such as picnic shelters, gazebos, or shared docks;

d. Playgrounds with benches and pedestrian scale lighting;

e. Dog parks with benches and pedestrian scale lighting;

f. Stormwater mitigation facilities such as bioretention, bioswale, or rain garden, designed as an amenity and provided in conjunction with other usable features mentioned in this section; a stormwater feature alone shall not count as usable open space;

g. Other active recreational or play facilities including but not limited to paved game courts such as tennis, basketball, or volleyball courts, swimming pools, baseball/softball diamonds or other facilities;

h. Historic or cultural sites with walkways and interpretive signage;

i. Unstructured open play areas for practice or pickup games;

j. Low impact recreation options (i.e. bocce ball, horseshoes, outdoor chess tables);

k. Conservation of natural features as defined in Section 17.12.090.

2. Stormwater Features. The following uses may count toward the open space stormwater feature component of this section:

a. Required stormwater mitigation measures such as reforestation;

b. Stormwater control measures, such as retention and detention basins, and other conventional stormwater facilities as approved by the planning commission, or their designee, and by metro water services.

3. If a property is located within 0.25 miles of local, state, or federal park, no minimum useable open space is required; however, the compact development subdivision is required to have at least ten percent total open space. For the purpose of this section greenways shall not be considered parks.

4. Compact development subdivisions shall attain a tree density factor of at least twenty-two units per acre using retained or replacement trees, or a combination of both.

5. Regardless of whether sidewalks are installed, street trees shall be required on new and existing streets.

a. If sidewalks are installed, street trees shall be planted within the grass strip/green zone for any sidewalk constructed, dependent on roadway classification and right-of way availability.

b. If no sidewalks are installed, street trees are required to be located within the right-of-way, dependent on roadway classification and right-of way availability.

c. Trees shall be installed according to the provisions of the Metro Nashville Street Tree Specifications prepared and maintained by metro water services in conjunction with Nashville Department of Transportation, Planning, and Codes.

d. Street trees shall be chosen from the Urban Forestry Recommended Tree List. Canopy trees shall be installed, except where conflicts with overhead electrical powerlines exist. In those instances, understory trees may be substituted.

e. Required street trees shall be depicted on a landscape plan. The landscape plan and specifications shall be prepared by, or under the direction of, and bear the seal of a professional landscape architect registered in Tennessee.

f. Trees installed pursuant to this section shall be eligible for credit toward tree density required by Chapter 17.28 of this title.

6. Configuration and Access. To the maximum extent practicable given the configuration, the open space shall be in a contiguous tract. When possible, usable open space shall be centrally located, directly accessible to the largest practicable number of lots within the subdivision, have street frontage and each lot shall be no more than one thousand three hundred twenty feet from usable open space as measured from the perimeter of the open space to individual lot lines. Non-adjacent lots shall be provided with pedestrian access to the usable open space via direct access or an access easement designated on the plat.

7. Ownership and Management.

a. Open space and street trees within a compact development shall be owned and maintained by an incorporated association for the mutual benefit of residents or property owners within the development and shall be adequately described on a recorded plat of subdivision approved by the planning commission. All property owners within a compact development subdivision shall be a member of the association which shall be responsible for the assessment of dues to cover the recurring costs of maintaining all open space areas and usable features. Articles of incorporation and bylaws shall be submitted and approved according to the subdivision regulations.

b. In limited circumstances where the open space is identified on the Greenways Master Plan or within the Parks Master Plan, the developer may offer the open space for dedication to metro parks subject to approval and acceptance by metro parks board and metro council as appropriate.

c. Open Space Management Plan. With the concept plan applicants shall submit a plan for the management of the open space, common open space, and street trees which allocates responsibility and guidelines for

maintenance and operation of the open space and any facilities located within the open space areas. If the open space is restricted via a conservation easement in the favor of a bona fide land trust or other permanently established organization legally able to accept such easements, a stewardship plan or other management plan associated with the conservation easement may be provided in lieu of the open space management plan.

d. Failure to maintain. When the failure of an association or other responsible party to properly maintain open space results in a public nuisance, the zoning administrator is empowered to initiate appropriate measures to eliminate the nuisance. If public funds are utilized to remove a nuisance and/or maintain open space, those costs shall be assessed proportionally against all property owners within the development in the form of a tax lien. This provision shall not apply to any open space that has been dedicated to and accepted by the metropolitan government.

E. For the purpose of this section (17.12.080), a property shall be determined to be located within 0.25 miles of an Arterial Boulevard, Collector Avenue, or park when fifty percent or greater area of the subject site lies within a buffer when measured from the edge of right-of-way or site boundary.

F. A property that is required to utilize Conservation Development, as stipulated by Section 17.12.090, that has since been modified to remove natural features after the adoption of this ordinance shall be prohibited from utilizing compact development as determined by staff.

1. All agricultural uses, including but not limited to commercial nurseries, botanical gardens, tree farms and grove operations shall be exempt, but only as to those trees and sites which were planted or managed for silvicultural or agricultural purposes or for the sale or intended sale in the ordinary course of business.

2. Any applicant that contests staff determination of the removal of natural features shall be required to provide an individual assessment that natural features disturbed or removed were done so prior to the adoption of this ordinance.

G. Application Requirements.

1. The subdivision concept plan (preliminary plat) shall clearly indicate that a compact development is proposed and shall be prepared in accordance with the procedures and requirements of the metro subdivision regulations.

2. All submittals shall clearly show and label the required open space and usable open space and features documenting that these requirements have been met.

3. Concurrent with the submittal of the concept plan, the applicant shall prepare and submit a site analysis map that identifies the natural areas as defined in Section 17.12.090. Documentation of, or determinations regarding the areas from appropriate metro, state or federal agencies or official maps or resources, if applicable, shall also be provided. (Amdt. 1 to Ord. BL2023-120 § 2, 2024; Ord. BL2023-120 § 2, 2024; Ord. BL2015-1153 § 16, 2015; Ord. 2002-1015 § 1 (part), 2002; Ord. 96-555 § 3.7, 1997)

17.12.090 Conservation development.

A. Purpose and Intent. Conservation development is a set of standards that shall be utilized in the design of subdivisions as provided in this section. The purpose of these standards is to:

1. Preserve unique or sensitive natural resources such as steep slopes; hillsides; streams, wetlands, floodways, and floodplains; problem soils; archaeological resources; and native forests or unique vegetation through the creation of natural open space.

2. Encourage the creation of lots on less environmentally sensitive areas of the site.

3. Provide flexibility in design of subdivisions within existing zoning districts to promote environmental resource protection.

B. Applicability. Subdivisions proposed in the R/R-A and RS/RS-A zoning districts that meet both of the following standards shall utilize the provisions of this section.

1. Minimum Site Area. The minimum site area of no less than ten times the minimum lot area for the base zoning district as established by Table 17.12.020A. For example, in the R10 district the minimum area for the subdivision would be one hundred thousand square feet. (Ten thousand square feet minimum lot size times ten).

2. Minimum Natural Area. A minimum of ten percent of the site contains any, or a combination of, the following:

a. Areas shown on FEMA maps as part of the 100-year floodplain or identified in local studies as confirmed by Metro Stormwater;

b. All perennial and intermittent streams, floodways, and associated buffers, as determined by Metro Stormwater or the State;

c. Areas of natural slopes of twenty percent or greater of at least ten thousand square foot contiguous area;

d. Areas containing problem soils as established by Section 17.28.050; wetlands, as determined by metro stormwater;

e. Habitat for federally or state listed or proposed rare, threatened, or endangered species;

f. Areas containing a Cedar Glade environment as established by Section 17.28.060;

g. Archaeological or historic sites, cemeteries, and burial grounds;

h. Protected, heritage, and historic and specimen trees, as defined by Section 17.28.065 of the Metro Zoning Code; or

i. For this section, the area calculated for protected, heritage, and historic and specimen trees, shall utilize the size of the tree protection zone, as defined within Section 17.28.065.

C. Maximum Lot Yield. The determination of the maximum lot yield shall be based on assigning twenty percent of the gross acreage of the site to open space and infrastructure. The remaining eighty percent of the gross acreage shall be divided by the minimum lot size of the base zoning district to determine the maximum yield. Yield shall not be based on the minimum lot size as described in Section D Lot Size Flexibility.

D. Conservation and Design Flexibility. In order to accomplish the purposes of this section, flexibility in lot sizes may be proposed in exchange for protection of the natural areas present on the site in natural open space according to the following standards:

1. Conservation Areas:

a. Subdivisions subject to the rural character subdivision regulations shall follow the procedures of those regulations for identification and protection of primary conservation lands in natural open space. In no case shall the standards of this section be construed to lessen the requirements for protection of primary conservation lands as identified in the rural character subdivision regulations or establish a lower minimum open space threshold for such developments. If less than twenty percent of the site is primary conservation land, then trees, if applicable, as specified in Section 17.12.090.B.2 shall be included as natural area required to be preserved in open space.

b. All other subdivisions shall set aside as natural open space those portions of the site containing natural areas for purposes of conserving those resources according to the following:

i. If less than or equal to twenty percent of the site contains these natural areas, then the entire area shall be set aside in natural open space.

ii. If more than twenty percent of the site contains natural areas, then a minimum of twenty percent of the site shall be set aside as natural open space.

> The applicant is encouraged, but not required, as part of this chapter, to set aside areas of common open space in excess of twenty percent in exchange for additional design flexibility.

2. Common open space may be provided for other purposes besides protection of natural areas, but such open space shall not contribute to the flexibility of lot sizes afforded by this section.

3. Lot Size Flexibility:

a. Subdivisions subject to the rural character subdivision regulations may reduce lots in size from the minimum required by the base zoning district by equivalent percentage of the site that is in the natural area protected in natural open space and such lots shall be reduced in lot area no more than the equivalent minimum lot size of two smaller base zoning districts. For example, a rural character subdivision in a RS20 district with twenty percent natural open space may create lots reduced in size by twenty percent. On a similar RS20 site with sixty percent natural open space, lots may be reduced the equivalent in size to a RS10 district, but no smaller.

b. All other subdivisions may reduce lots in size from the minimum required by the base zoning district by equivalent percentage of the site that is in the natural area protected in natural open space. For example, on a site zoned RS15 with ten percent of the site set aside as natural open space, the lots may be reduced in size by ten percent, or to a minimum of thirteen thousand five hundred square feet in area. On a site zoned RS15 with thirty-five percent of the site set aside as natural open space, the lots may be reduced in size by thirty-five percent, or to a minimum of nine thousand seven hundred fifty square feet.

4. In no case shall the minimum lot size be reduced below three thousand seven hundred fifty square feet.

5. Lots proposed for duplexes must meet the minimum lot size of the base zoning district (no reduction in area permitted) and shall comply with the standards of Section 17.16.030.D of this title.

6. Development in hillside and floodplain areas shall follow those standards as set out in Chapter 17.28. If the natural area preservation required in those sections is greater than the area required here, then that chapter shall prevail. In no case shall the required natural area preservation be less than that required in this section.

7. Tree preservation or removal proposed in a conservation development shall follow the standards of Section 17.28.065. If the tree or natural area preservation required in that section is greater than the area required here, then the requirements of that section shall prevail. In no case shall the required natural area preservation be less than that required in this section.

8. The standards for the review of critical lots as provided in the adopted subdivision regulations shall apply.

9. The bulk standards and landscaping requirements of a comparable zoning district which most closely resembles the alternative lot sizes proposed for any given phase of development shall be employed for that phase of the subdivision.

10. A standard C landscape buffer yard as per Chapter 17.24 Article IV Landscape Buffer Yard Requirements shall be required along the perimeter of the development when perimeter lots are reduced in size from the minimum lot size required by the base zoning district. If all perimeter lots meet the minimum size of the base zoning, no landscape buffer yard is required.

E. Natural Open Space. Open space provided for the purposes of protecting natural areas and in exchange for flexibility of design, as described above, shall be called natural open space and subject to the standards below. These standards are not applicable to common areas or open spaces that may be provided for other purposes.

1. All natural open space provided in accordance with this section shall be platted with the first phase of development that includes any lots utilizing alternative lot sizes as provided for above and shall be identified on the plat as protected natural open space. Consideration shall be given to the timing of platting of natural open space for large developments that contain natural area located in a portion of the site that may be inaccessible to the first phases of development.

2. Clearing, grading or disturbance of natural open space shall be prohibited, except for essential infrastructure. Roadways and other essential utilities necessary to serve the development may be permitted to cross a natural open space provided that this development minimizes impacts to this area. Preliminary grading and construction plans that demonstrate the limits of disturbance, feasibility of construction and overall impacts to the area at a level of detail beyond that normally required at the concept plan (preliminary plat) phase shall be required prior to approval of a plan incorporating such infrastructure. The portion of the natural open space that must be disturbed to accommodate essential infrastructure shall not contribute toward the required minimum natural open space or flexibility of lot size afforded by the previous section.

3. Protected natural open space shall be located and identified in the field by the applicant prior to the issuance of a tree removal or grading permit to ensure there is no disturbance of these areas during the construction process.

4. Configuration and Access. To the maximum extent practicable given the configuration of natural areas, the open space shall be in a contiguous tract. Consideration should be given to the preservation of natural area that adjoins neighboring areas of open space, other protected areas, and non-protected natural areas that would be candidates for inclusion as part of a future area of protected open space in an adjacent development. The open space shall be directly accessible to the largest practicable number of lots within the subdivision. Non-adjoining lots shall be provided with pedestrian access to the open space via direct access or an access easement designated on the plat.

5. Permitted Uses of Natural Open Space. The following uses may be located or installed within natural open space without affecting the contribution of those areas to flexibility of lot size afforded by the previous section:

a. Conservation of natural resources.

b. Paved greenway trails or trailhead facilities identified in the Metropolitan Parks and Greenways Master Plan and located within publicly accessible greenway conservation easements to the benefit of the metropolitan greenways commission or metro parks.

c. Walking or bicycle trails provided they are constructed of pervious paving materials.

d. Athletic courts and fields or playgrounds, provided that they meet the following:

i. All facilities are designed and constructed with a permeable base or groundcover; no impermeable surfaces shall be used;

ii. All facilities make up no more than five percent of the total natural open space area of the development or four thousand six hundred square feet, whichever is less; and

iii. No facility shall be constructed on wetlands as determined by metro stormwater; in known habitat for federally or state listed or proposed rare, threatened, or endangered species; in areas containing a protected Cedar Glade plant species as established by Section 17.28.060 of the Metro Zoning Code; on archaeological or historic sites, cemeteries, and burial grounds; or in an area that would require the removal of protected, heritage, and/or historic and specimen trees as defined by Section 17.40.450 of the Metro Zoning Code.

e. Passive recreation areas such as picnic shelters, gazebos, or shared docks.

f. Required stormwater mitigation measures such as reforestation that do not require grading.

g. Other conservation-oriented uses compatible with the purposes of this section.

6. Prohibited Uses of Natural Open Space.

a. Clearing, grading, disturbance, or tree removal except as specifically authorized in the permitted uses.

b. Roads, parking lots, impervious surfaces, and infrastructure.

c. Active recreational or play facilities that are designed and constructed with impermeable surfaces including but not limited to tennis courts, basketball courts, swimming pools, playgrounds, baseball/softball diamonds or volleyball courts or other facilities.

d. Impoundments, such as retention and detention basins, and other conventional stormwater facilities.

7. Ownership and Management.

a. Natural open space within a conservation development shall be owned and maintained by an incorporated association for the mutual benefit of residents or property owners within the development and shall be adequately described on a recorded plat of subdivision approved by the planning commission. All property owners within a conservation subdivision shall be a member of the association which shall be responsible for the assessment of dues to cover the recurring costs of maintaining all natural open space areas. Articles of incorporation and bylaws shall be submitted and approved according to the subdivision regulations.

b. In limited circumstances where the natural open space is identified on the Greenways Master Plan or within the Parks Master Plan, the developer may offer the open space for dedication to metro parks subject to approval and acceptance by metro parks board and metro council as appropriate.

c. Natural Open Space Management Plan. With the concept plan applicants shall submit a plan for the management of the open space and common facilities which allocates responsibility and guidelines for maintenance and operation of the open space and any facilities located within the open space areas. If the open space is restricted via a conservation easement in the favor of a bona fide land trust or other permanently established organization legally able to accept such easements, a stewardship plan or other management plan associated with the conservation easement may be provided in lieu of the open space management plan.

d. Failure to Maintain. When the failure of an association or other responsible party to properly maintain a natural open space results in a public nuisance, the zoning administrator is empowered to initiate appropriate measures to eliminate the nuisance. If public funds are utilized to remove a nuisance and/or maintain natural open space, those costs shall be assessed proportionally against all property owners within the development in the form of a tax lien. This provision shall not apply to any natural open space that has been dedicated to and accepted by the metropolitan government.

F. Application Requirements.

1. The subdivision concept plan (preliminary plat) shall clearly indicate that a conservation development is proposed and shall be prepared in accordance with the procedures and requirements of the metro subdivision regulations.

2. Concurrent with the submittal of the concept plan, the applicant shall prepare and submit a site analysis map that identifies the natural areas. Documentation of, or determinations regarding the areas from appropriate metro, state or federal agencies or official maps or resources, if applicable, shall also be provided.

3. Preliminary grading and construction plans that demonstrate the limits of disturbance, feasibility of construction and overall impacts to a natural area at a level of detail beyond that normally required at the concept plan (preliminary plat) phase shall be required prior to approval of a conservation plan. (Ord. BL2024-617 § 2, 2024; Ord. BL2022-1122 § 4, 2022; Amdt. 2 to Ord. BL2022-1121 § 1, 2022; Ord. BL2022-1121 § 1, 2022; Ord. BL2015-1153 §§ 15, 16, 2015; Amdt. 1 to Ord. BL2007-1365 § 1, 2007; Ord. BL2007-1365 § 1, 2007; Ord. 2002-1015 § 1 (part), 2002; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 3.8, 1997)

17.12.100 Single-family cottage developments.

In order to provide opportunities for individual ownership of small residential lots oriented onto a common open space, lots in cottage subdivisions shall be arranged subject to the following:

A. Applicability. Single-family cottage developments are permitted in all zoning districts that permit multi-family uses; see Chapter 17.37 for applicability in the DTC zoning district. See Chapter 17.38 for applicability and standards within the RN1, RN2, RL1, RL2, and RL3 zoning districts.

B. Density. Single-family cottage subdivisions shall be developed at a density consistent with the density requirements of the base zone district. Each individual single-family cottage development within a subdivision shall contain four to ten cottage units in small lots around a common open space.

C. Orientation. Cottage units shall be oriented to front, and have a main entry onto, the common open space. However, cottage lots abutting a street may front the street, but shall not have the rear of the unit facing the street. Cottage units fronting the street shall have a secondary entrance onto the common open space.

D. Bulk Standards. The following bulk standards shall apply:

1. Minimum lot sizes shall be waived. See Table 17.020.B.1 for other standards.

2. The common open space shall total at least 250 square feet per cottage unit, and shall have cottages abutting on at least two sides.

3. The common open space shall be accessible to all cottage units in the development.

4. Only one dwelling unit per lot shall be permitted.

5. The maximum building coverage, excluding covered porches, shall be 1,000 square feet.

6. The maximum height of a cottage shall be two stories.

7. Front, rear and side setbacks from the property lines shall be a minimum of three feet.

8. Cottage units abutting a public street shall meet the requirements of Table 17.12.030.A. Notwithstanding the base zoning district, cottage units abutting a public street within the UZO shall be subject to the contextual street setbacks specified in Section 17.12.035.

9. Where a proposed development cannot comply with the standards of this section, the zoning administrator may approve other standards provided that the intent of this section is met.

E. Parking Requirements. The requirements for the provision of parking for single-family cottage developments shall be as follows:

1. Parking shall be located on the cottage development property.

2. Parking shall meet the requirement for single-family residential units established in Table 17.20.030.

3. Parking shall be provided on each cottage lot, or in the form of shared parking cluster(s) in commonly owned space, or a combination of the two.

4. Parking clusters shall be no more than six adjoining spaces and shall not be visible from a public street. Parking shall be screened from adjacent residential uses by landscaping or architectural screening as specified in Section 17.24.150.B.

5. Parking shall not be permitted in an established front yard setback or required common open space.

6. Parking may be permitted between, or to the side of structures, only when it is setback a minimum of ten feet from the leading edge of the front facade of a cottage unit and is accessed by a side or rear alley, or a side or rear private driveway.

7. The zoning administrator may approve other methods for the provision of parking provided the intent of this section is met. (Ord. BL2025-1005 § 1(Exh. A), 2025; Ord. BL2009-586 § 1(Exh. A, § 26), 2010; Ord. BL2006-971 § 5, 2006)

17.12.110 Alternative minimum lot size and setbacks for attached housing.

In order to provide opportunities for individual home ownership in all zoning districts that permit multi-family uses (except in the DTC zoning district), lots in attached housing developments of at least three units may be arranged subject to all of the following:

A. Density. The attached housing shall be developed at a density consistent with the density requirements of the base zone district.

B. Bulk Standards. The following bulk standards shall apply:

1. The attached housing shall be developed at a Floor Area Ratio (FAR) consistent with the FAR of the base zone district.

2. Only one dwelling unit per lot shall be permitted.

3. The attached housing shall meet the standards contained in Table 17.12.020.B.1.

4. The minimum street setback shall be three feet from the right-of-way line but shall not vary by more than 20 percent from the standards set in Section 17.12.030.C(3).

C. Parking Requirements. The requirements for the provision of parking for attached housing shall be as follows:

1. Parking shall meet the requirements for multi-family residential units established in Table 17.20.030.

2. Parking shall be accessed by a side or rear alley or a side or rear private driveway and shall not be visible from the street. Parking shall be screened from adjacent residential uses by landscaping or architectural screening as specified in Section 17.24.150.B.

3. The zoning administrator may approve other methods for the provision of parking provided the intent of this section is met. (Ord. BL2009-586 § 1(Exh. A, § 27), 2010; Ord. BL2006-971 § 6, 2006)

17.12.120 Reserved.

Editor's note—Ord. BL2015-1152 § 1, passed July 21, 2015, repealed § 17.12.120, which pertained to transfer of development rights and derived from Amdt. 1 to Ord. BL2007-1369 § 1, 2007; Ord. BL2007-1369 § 1, 2007.

Chapter 17.16

LAND USE DEVELOPMENT STANDARDS

Sections:

Article I. General Provisions

17.16.010 Purpose and intent.

Article II. Uses Permitted With Conditions (PC)

17.16.020 Applicability.
17.16.030 Residential uses.
17.16.035 Institutional uses.
17.16.040 Educational uses.
17.16.050 Office uses.
17.16.060 Medical uses.
17.16.070 Commercial uses.
17.16.080 Communication uses.
17.16.090 Industrial uses.
17.16.100 Utility uses.
17.16.105 Transportation uses.
17.16.110 Waste management uses.
17.16.120 Recreation and entertainment uses.
17.16.130 Other uses.

Article III. Uses Permitted by Special Exception (SE)

17.16.140 Applicability.
17.16.150 General provisions.
17.16.160 Residential special exceptions.
17.16.170 Institutional special exceptions.
17.16.175 Commercial special exceptions.
17.16.180 Communication special exceptions.
17.16.185 Industrial special exceptions.
17.16.190 Transportation special exceptions.
17.16.200 Utility special exceptions.
17.16.210 Waste management special exceptions.
17.16.220 Recreation and entertainment special exceptions.
17.16.230 Other special exception uses.

Article IV. Uses Permitted as Accessory (A)

17.16.240 Applicability.
17.16.250 Residential accessory uses.
17.16.260 Institutional accessory uses.
17.16.270 Office accessory uses.
17.16.275 Medical accessory uses.
17.16.280 Commercial accessory uses.
17.16.290 Communication accessory uses.
17.16.300 Industrial accessory uses.
17.16.310 Waste management accessory uses.
17.16.320 Recreation and entertainment accessory uses.
17.16.330 Other accessory uses.

Article I. General Provisions

17.16.010 Purpose and intent.

A. In addition to the zone district bulk, landscaping, parking and other regulatory provisions of this title, supplemental development standards may apply to specific land uses when located in certain zone districts. The zoning district land use table references those specific uses which must comply with supplemental development standards as:

PC	-	Permitted with conditions
SE	-	Permitted by special exception
A	-	Permitted as accessory to another principal use

B. Land use development standards are necessary because certain land uses are more unique or impacting than other uses in the same zone district and therefore conditions are established to insure compatibility with surrounding land uses. Other uses require large land areas, have unique operating characteristics, or tend to dominate the area more intensely than do other uses permitted in the same zone district. Some uses are socially and economically necessary in a particular zone district even though the potential may exist for the use to be incompatible with existing and future development. The development standards are intended to lessen and minimize incompatible land use relationships. Because the potential impacts cannot be satisfactorily predetermined for every location, some land uses are permitted in a zone district only as a special exception. Finally, other uses are uniquely incidental to other principal land uses and are appropriate when certain minimum standards are satisfied.

C. No zoning permit shall be issued for any development or use of land listed as PC, SE or A in the zoning district land use table or the DTC zoning district land use table unless the use is in compliance with all applicable land use development standards. Where development standards of this chapter are in conflict with the minimum bulk regulations of Chapters 17.12 or 17.37, the more restrictive standard shall apply. (Ord. BL2009-586 § 1(Exh. A, § 28), 2010; Ord. 96-555 § 4.1, 1997)

Article II. Uses Permitted With Conditions (PC)

17.16.020 Applicability.

The land use development standards in this article apply to uses permitted with conditions, referenced as "PC" in the zoning district land use table, Section 17.08.030 or in Chapter 17.37.

For uses within the DTC zoning district designated as "permitted with conditions" (PC), these uses shall not be required to comply with the landscaping provisions or minimum distance requirements specified herein from a zoning district permitting residential use. However, these provisions shall apply where the DTC district abuts a R and R-A, RS and RS-A, or RM district, or a property with exclusively residential use regardless of its base zoning. (Ord. BL2015-1153 § 16, 2015; Amdt. 1 to Ord. BL2009-586 § (Exh. A, § 29.a), 2010; Ord. BL2009-586 § 1(Exh. A, § 29), 2010; Ord. 96-555 § 4.2 (part), 1997)

17.16.030 Residential uses.

(Refer to zoning district land use table)

A. Consignment Sale. A consignment sale shall be permitted provided the following conditions are met:

1. Consignment sale must be held or conducted in or upon real property, and must be accessory to the principal use of the land.

2. Lot Area. A minimum lot size of three acres shall be required for any consignment sale.

3. Within any calendar year, a maximum of two consignment sale events shall occur per lot. An event is defined as a consignment sale that may occur for one day, two days and at most three days per an event.

4. Parking. Adequate off-street parking shall be provided to reduce traffic congestion and the blocking of driveways to other private or public properties.

5. An auction of a decedent's personal estate and/or real property conducted by a licensed auctioneer shall not be counted as a consignment sale.

B. Mobile Home Dwelling. In the mobile home park (MHP) zone district, the following supplemental development standards shall apply.

1. Minimum size of park: Two acres under single ownership.

2. Maximum density: Nine homes per acre.

3. Landscape Buffer Yard. Where the perimeter of a mobile home park development abuts an R/R-A or RS/RS-A zone district, a minimum of landscape buffer yard Standard B-3 (fifteen feet) shall be applied, and where the development abuts a public street the minimum width of the buffer yard shall be C-2 (thirty feet).

4. Open Space. A minimum of ten percent of the total land area within the MHP, excluding roadways, drives, off-street parking areas and required setbacks, shall be designated as open space.

5. Mobile Home Park. Mobile home dwellings shall be permitted in a mobile home park on a two acre minimum tract under single ownership provided:

a. Minimum lot area: Four thousand square feet per each individual lot or lease plot.

b. Minimum lot width: Minimum of forty feet.

c. Setbacks:

1. Public/private street or private drive: Minimum of twenty feet.

2. Rear property or lease line: Minimum of ten feet.

3. Side property or lease line: Minimum of ten feet.

d. Maximum height of any structure within the MHP: Thirty feet.

e. Maximum floor area ratio (non-residential): .60.

f. Maximum impervious surface ratio: .70.

g. Street Standard. The mobile home park shall have direct access to an abutting improved public street designated or proposed as an arterial or collector street on the Major Street Plan. At a minimum, access and circulation within the park shall be provided by a paved driveway with a minimum width of twenty-four feet, permanently maintained by the landowner through conveyance of a private easement on a recorded property plat. If the paved driveway has visitor parking along it, the minimum pavement width of the driveway shall be increased to twenty-seven feet.

h. Sidewalk. A sidewalk with a minimum width of four feet shall be provided along one side of all private drives within the MHP.

i. Tenant Storage. A minimum of ninety cubic feet of enclosed tenant storage space shall be provided. The skirting of the undercarriage shall not be used for purposes of required tenant storage space.

j. Skirting of Undercarriage. Each mobile home unit's frame, axles, wheels, crawl space storage area, and utility connection shall be concealed from view through use of durable all-weather materials manufactured specifically for the purpose of covering the undercarriage area of the unit.

6. Board of Health Approval. A mobile home park development shall be reviewed and approved by the director of the metropolitan board of health in accordance with Chapter 10.40 of the Metropolitan Code of Laws and the rules and regulations promulgated by the metropolitan health department.

C. Security Residence. A residence shall be permitted provided the following conditions are met:

1. The residence is occupied by a security guard, the business owner or member of the owner's immediate family defined as grandmother, grandfather, mother, father, sister, brother, son, daughter, mother-in-law, father-in-law, sister-in-law, brother-in-law, son-in-law, daughter-in-law, aunt or uncle;

2. The residence must be accessory to the principal use of the land and either located directly above the business or within the same building as the business;

3. The residence may not be rented;

4. The residence must provide the required parking per Article II of Chapter 17.20;

5. Only one residence is permitted on the property;

6. No entrance to the residential unit, which would be visible from the street, may be added solely for the purpose of providing direct outside access to the street;

7. An instrument shall be recorded with the register's office covenanting that the residence is being established as an accessory use and may only be used under the conditions listed above.

D. Two-Family Dwellings. In the AG, AR2a, R80, R40, R30, R20, R15, R10, R8 and R8-A, and R6 and R6-A districts, two-family dwellings may be permitted on any lot legally created as prescribed by state law or within an approved subdivision final plat provided the lot meets the minimum lot size standard of the district.

E. Multi-family uses accessory to an artisan manufacturing use.

1. A maximum of two units per lot shall be permitted as an accessory use to Manufacturing, Artisan use.

2. Residential uses are supported by the Community Plan, as determined by the planning department.

F. Adaptive Residential Development. A residential use shall be permitted provided a minimum of forty percent of the existing or proposed building's gross floor area is devoted to residential uses, subject to the following conditions:

1. Applicability. The provisions of this section shall apply to any residential use permitted with conditions in a non-residential zoning district except when located within a Planned Unit Development Overlay district. If located within a Planned Unit Development Overlay district, residential uses are only permitted where the Council adopted preliminary master plan included residential uses as a permitted use.

2. Design Standards. Except as noted below, all other requirements and standards established by other chapters of this title, as well as any other applicable metropolitan government, state, or federal regulation, shall apply to the development and use of properties shown on the final site plan. In case of conflict between the standards of this section and other chapters of this Zoning Code, the provisions of this section shall control, except for council-approved plans such as specific plan districts, planned unit developments, urban design overlay districts, and redevelopment districts.

a. All Residential Uses. The standards of this section shall apply only to a building or portion thereof converted to residential use, any addition to an existing building for residential use, and any new construction building, where a minimum of forty percent of the building's gross floor area is devoted to residential use, as explicitly shown on the approved final site plan under the authority of Section 17.40.170(A) of this title. The standards of this section shall not apply to any building proposing to devote less than forty percent of the gross floor area to residential uses.

b. Single-Family and Two-Family Residential Uses. Single-family and two-family uses shall be permitted only in an existing building.

3. Residential Floor Area. In all non-residential districts that permit with conditions a residential use, no density or floor area ratio applies to those portions of a non-residential building converted to a residential use or to new residential construction.

4. Building Orientation. In any new or existing building, a primary building entrance shall be oriented to the street. On a corner lot, entrances shall be oriented to each street.

5. Driveway Access. For new construction, driveway access shall be determined in consultation with Nashville Department of Transportation with priority given to arterial and collector streets.

6. Parking. Parking spaces shall be required for any residential, commercial and/or retail use in accordance with Chapter 17.20. Outside of the UZO, no more than one and one-half spaces shall be required per a residential dwelling unit. If parking is provided in a new deck or structure, the ground floor of the parking facility abutting a public street shall contain commercial or retail uses for seventy-five percent of the street frontage. The commercial or retail area shall have a minimum depth of twenty feet, a minimum height of fourteen feet (floor to floor) for the first floor of the garage at street level, with each storefront having between fifty-five percent and eighty-five percent glazed window area along the garage wall facing the public street. Upper levels of structured parking visible from public streets shall either be lined with active uses or screened with architectural screening.

7. Multimodal Transportation Analysis. Multimodal transportation analysis shall be required per Section 17.20.140.

8. Landscaping. Notwithstanding Section 17.24.050(A), any single addition that increases the total building area by twenty-five percent or more of an existing building, in whole or in part, shall provide landscaping as required by this title. Where the number of parking spaces is increased by twenty-five percent, either through a parking lot expansion or the construction of a new parking lot, interior parking lot landscaping shall be required.

9. Final Site Plan Approval. A final site plan application shall be submitted for review and approval in a manner consistent with the procedures of Section 17.40.170(A) or 17.40.170(B), as applicable, and any supplemental information requested after review of the application. Final site plan applications shall be of sufficient detail to fully describe the ultimate form of development and demonstrate full compliance with all applicable standards. The zoning administrator, upon advice of the appropriate metropolitan government agencies, shall grant final site plan approval based on findings that the design, proportions, and articulation of the proposed residential use are compatible with, and do not impact, the abutting or adjacent uses.

10. Alternative Design Standards. Where a proposed residential development cannot comply with the standards of this section, the applicant shall be required to submit for review by the board of zoning appeals a special exception, in accordance with Sections 17.16.140 and 17.16.150 of this title. The minimum filing fee shall be equal to a commercial application as per the adopted board of zoning appeals fee schedule. In granting such approval of a special exception application, the board shall determine that the applicant has demonstrated that the relief being requested will not be injurious to surrounding properties, nor violates the adopted general plan. Any special exception approved by the board shall fully comply with the standards of Subsection 12 of this section. The board shall not act on any application without first considering a recommendation from the planning department.

11. Notice. Applicants seeking an adaptive residential development use shall provide mailed notice of the proposed use, including the total number of dwelling units proposed, to all property owners within one thousand feet of the subject property no more than twenty-one days following the application of any permit related to the proposed adaptive residential development. Properties owned by the applicant shall not be included in the distance measurement for public notice. In addition to notification of individual property owners, an incorporated condominium association registered with the metropolitan clerk as requesting notification shall also be notified.

12. Short Term Rental Property. Lots developed with an adaptive residential use that have a majority of their street frontage on local street as shown on the adopted Major and Collector Street Plan or are located outside of the Urban Services District shall not be eligible for short term rental property — owner occupied or short term rental property — not owner occupied permits. Properties that have an active short term rental property permit in good standing prior to August 1, 2024, shall be exempt from this prohibition.

G. Detached Accessory Dwelling Unit. A detached self-sufficient dwelling unit shall be allowed accessory to a principal structure subject to the following standards:

1. Applicability.

a. While the following conditions listed below apply to a detached accessory dwelling unit, they do not counteract or override the applicable life safety standards found in the code editions adopted by the Metropolitan Government of Nashville.

b. No other accessory structure shall exceed two hundred square feet when there is a detached accessory dwelling unit on the lot.

2. Lot Area. The lot area on which the detached accessory dwelling unit is to be placed shall comply with Table 17.12.020A or Chapter 17.38 for Design-Based Multi-Family districts, as applicable.

3. Ownership.

a. No more than one detached accessory dwelling unit shall be permitted on a single lot in conjunction with the principal structure.

b. The detached accessory dwelling unit cannot be divided from the property ownership of the principal dwelling.

c. Only one detached accessory dwelling unit shall be permitted and only when one single-family principal structure is present. When two principal structures are present, then no detached accessory dwelling unit is permitted.

d. The detached accessory dwelling unit shall be owned by the same person, or entity, as the principal structure and one of the two dwellings shall be owner-occupied.

4. Setbacks. The setbacks for a detached accessory dwelling unit shall meet the setbacks found in Section 17.12.040.E. for accessory buildings or Chapter 17.38 for Design-Based Multi-Family districts, as applicable.

5. Site Requirements. A detached accessory dwelling unit may only be located behind the principal structure in the rear buildable area of the lot.

6. Driveway Access.

a. On lots with no alley access, the lot shall have no more than one curb-cut from any public street for driveway access to the principal structure as well as the detached accessory dwelling unit.

b. On lots with alley access, any additional access shall be from the alley and no new curb cuts shall be provided from public streets.

c. Parking accessed from any public street shall be limited to one driveway for the lot with a maximum width of twelve feet.

7. Bulk and Massing.

a. The living space of a detached accessory dwelling unit shall not exceed seven hundred square feet for lots less than ten thousand square feet, or eight hundred fifty square feet for lots ten thousand square feet or greater and shall not exceed the size of the principal structure.

b. The detached accessory dwelling unit shall maintain a proportional mass, size, and height to ensure it is not taller and/or larger than the principal structure on the lot. The detached accessory dwelling unit height shall not exceed the height of the principal structure as measured to the eave line, with a maximum eave height of ten feet for single-story and seventeen feet for two-story detached accessory dwelling units as measured from average finished grade. Within the RN1, RN2, RL1, RL2, and RL3 zoning districts, the standards of Chapter 17.38 shall control height.

c. The roof ridge line of the detached accessory dwelling unit must be less than the primary structure and shall not exceed twenty-seven feet in height as measured from average finished grade. Within the RN1, RN2, RL1, RL2, and RL3 zoning districts, the standards of Chapter 17.38 shall control height.

8. Design Standards.

a. The detached accessory dwelling unit shall be of similar style, design and material color as used for the principal structure and shall use similar architectural characteristics, including roof form and pitch, to the existing principal structure.

b. The detached accessory dwelling unit may have dormers that relate to the style and proportion of windows on the detached accessory dwelling unit and shall be subordinate to the roofslope by covering no more than fifty percent of the roof.

c. Detached accessory dwelling units may have dormers that are setback a minimum of two feet from the exterior wall.

9. Historic Properties.

a. Metro Historic Zoning Commission Action. Any existing or proposed detached accessory dwelling unit in a historic overlay district shall comply with the adopted regulations and guidelines of the applicable historic overlay.

b. Detached accessory dwelling units with a second story dwelling unit shall enclose the stairs interior to the structure and properly fire rate them per the applicable life safety standards found in the code editions adopted by the Metropolitan Government of Nashville.

10. Restrictive Covenant. Prior to the issuance of a permit, an instrument shall be prepared and recorded with the register's office covenanting that the detached accessory dwelling unit is being established accessory to a principal structure and may only be used under the conditions listed in 17.16.030.G.

11. Location. Detached accessory dwelling units shall only be permitted within the Urban Services District, within a Detached Accessory Dwelling Unit overlay district within the General Services District outside of the Urban Services District, or as otherwise permitted through a Specific Plan.

12. Short Term Rental Property (STRP). Upon enactment of this section, on any single-family-zoned, Residential Neighborhood-zoned, or Residential Limited-zoned lot where a new detached accessory dwelling unit is built, or on any single-family-zoned, Residential Neighborhood-zoned, or Residential Limited-zoned lot where a new detached accessory dwelling unit is established via conversion of an existing accessory structure, short term rental property—owner occupied, is not a permitted use in the accessory dwelling unit.

13. Utilities. The detached accessory dwelling unit may be served by separate utility meter(s).

H. Design-Based Multi-Family.

1. Townhouses, house courts, townhouse courts, plex houses, and manor houses shall be permitted within the RN1 and RN2 zoning districts as regulated by Chapter 17.38.

2. Townhouses, house courts, townhouse courts, plex houses, manor houses, multiplexes, low-rise courtyard flats, and low-rise flats shall be permitted within the RL1, RL2, and RL3 zoning districts as regulated by Chapter 17.38. (Amdt. A to Ord. BL2025-1007 § 5, 2025; Ord. BL2025-1007 § 5, 2025; Ord. BL2025-1006 § 5, 2025; Ord. BL2025-1005 § 1(Exh. A), 2025; Amdt. B to Ord. BL2024-187 § 1, 2024; Amdt. A to Ord. BL2024-187 § 1, 2024; Ord. BL2024-187 § 1, 2024; Ord. BL2024-184 § 5, 2024; Amdt. 1 to Ord. BL2022-1531 § 1, 2023; Ord. BL2022-1531 § 1, 2023; Ord. BL2022-1508 §§ 2, 3, 2023; Ord. BL2017-980 § 1, 2017; Ord. BL2015-1153 §§ 15, 16, 2015; Ord. BL2015-

1121 § 6, 2015; Ord. BL2014-770 § 3, 2014; Ord. BL2014-769 §§ 2—7, 2014; Ord. BL2014-684 § 2, 2014; Ord. BL2011-80 § 1, 2012; Amdt. 1 to Ord. BL2011-900 § 3, 2011; Ord. BL2011-900 § 3, 2011; Ord. BL2009-586 § 1(Exh. A, § 30), 2010; Ord. BL2009-552 §§ 1, 2, 2009; Amdts. 1 and 2 with Ord. BL2004-492 § 2, 2005; Ord. 2002-1011 § 1 (part), 2002; Amdt. 1 with Ord. BL2000-477 § 1 (part), 2000; Ord. 99-1642 § 1 (part), 1999; Ord. 99-1616 § 1 (part), 1999; Ord. 98-1268 § 1 (part), 1998; Ord. 98-1267 § 2, 1998; Ord. 96-555 § 4.2(A), 1997)

17.16.035 Institutional uses.

(Refer to zoning district land use table)

A. Day Care Center—Up to 75.

1. Play Area. If an outdoor play area is provided, it shall be fenced and attached to the day care structure in a manner which minimizes noise impacts on neighboring residences.

2. Lot Area. Where a minimum lot size is required, the minimum lot area shall be the same as the principal activity, except when in the opinion of the zoning administrator circumstances warrant otherwise.

3. State Regulations. All requirements of the state that pertain to the use and operation of the facility shall be met.

4. Multi-Family Buildings. The zoning administrator may waive the above standards for multi-family housing developments of two hundred or more units if compliance would disqualify an otherwise reasonable location.

B. Day Care Center—Over 75.

1. Play Area. If an outdoor play area is provided, it shall be fenced and attached to the day care structure in a manner which minimizes noise impacts on neighboring residences.

2. Lot Area. Where a minimum lot size is required, the minimum lot area shall be the same as the principal activity, except when in the opinion of the zoning administrator circumstances warrant otherwise.

3. State Regulations. All requirements of the state that pertain to the use and operation of the facility shall be met.

4. Multi-Family Buildings. The zoning administrator may waive the above standards for multi-family housing developments of two hundred or more units if compliance would disqualify an otherwise reasonable location.

C. Day Care Home—Small.

1. Location. All day care home—Small uses shall be considered a conditionally permitted use and comply with the requirements of this subsection.

2. Play Area. If an outdoor play area is provided, it shall be fenced and attached to the day care structure in a manner which minimizes noise impacts on neighboring residences.

3. Lot Area. Where a minimum lot size is required, the minimum lot area shall be the same as the principal activity, except when in the opinion of the zoning administrator circumstances warrant otherwise.

4. State Regulations. All requirements of the state that pertain to the use and operation of the facility shall be met.

5. Multi-Family Buildings. The zoning administrator may waive the above standards for multi-family housing developments of two hundred or more units if compliance would disqualify an otherwise reasonable location.

D. Day Care Home—Large.

1. Play Area. If an outdoor play area is provided, it shall be fenced and attached to the day care structure in a manner which minimizes noise impacts on neighboring residences.

2. Lot Area. Where a minimum lot size is required, the minimum lot area shall be the same as the principal activity, except when in the opinion of the zoning administrator circumstances warrant otherwise.

3. State Regulations. All requirements of the state that pertain to the use and operation of the facility shall be met.

4. Multi-Family Buildings. The zoning administrator may waive the above standards for multi-family housing developments of two hundred or more units if compliance would disqualify an otherwise reasonable location. (Ord. BL2022-1073 § 3, 2022; Ord. 98-1268 § 1 (part), 1998)

17.16.040 Educational uses.

(Refer to zoning district land use table)

A. Community Education.

1. Campus Size. Minimum campus size shall be based on the total enrollment capacity of the following school types:

School Type	Minimum Campus Size*
Elementary (K—8)	5 acres + 1 acre/100 students
Middle (5—9)	10 acres + 1 acre/100 students
High (7—12)	15 acres + 1 acre/100 students

* Public park space which abuts the school site may be calculated to meet the minimum campus size, provided the metropolitan board of parks and recreation approves the site for shared use.

2. Setback. Where elementary and middle school structures and outdoor activity grounds abut a residential zone district or district permitting residential use, there

shall be a minimum setback of fifty feet. Where high school structures and outdoor activity grounds abut a residential zone district or district permitting residential use, there shall be a minimum setback of one hundred feet. Notwithstanding any other provision of the Metropolitan Code of Laws, no new community education facility, as defined in Metropolitan Code of Law Section 17.04.060(B), shall henceforth be constructed within two thousand feet of the property line of any landfill or other waste disposal facility.

3. Landscape Buffer Yard. Screening in the form of landscape buffer yard Standard B shall be applied along common property lines.

4. Street Standard. At a minimum, educational facilities shall have driveway access on streets that function at the minimum street standards below:

a. Elementary: Any street; on minor local streets, driveway access shall be permitted only if the minor local street intersects an arterial or collector street within the same block;

b. Middle: Collector street;

c. High: Arterial street; or the intersection of two collector streets.

5. Reduced Lot Size. The board of zoning appeals may permit school facilities on smaller lot sizes than set forth above provided extracurricular activities are not offered by the school. Indoor/outdoor interscholastic and intramural competitive sports and outdoor physical education facilities are prohibited. Playgrounds and nature study grounds shall be permitted. The reduced lot size shall not be less than the following enrollment capacities.

Enrollment Capacity	Minimum Lot Size
1 to 75	2 acres
75 or more	3 acres + 1 acre/100 students

a. Landscape Buffer Yard. Screening in the form of landscape buffer yard Standard A shall be applied along common property lines.

b. Street Standard. Reduced lot size educational facilities may have driveway access on any street, except on a minor local street driveway access shall be permitted only if the institution is located on a corner lot.

6. Community education facilities having a valid use and occupancy permit on the effective date of the ordinance codified in this code, and which cannot satisfy the locational or design standards of this section, may petition the board of zoning appeals as a special exception use under the provisions of Article III of this chapter.

7. Required School Site Dedications. All required school site dedications shall follow the zoning requirements in effect at the time the dedication requirement was approved by the metropolitan council through the adoption of an amendment to the official zoning map, or the current requirements of Section 17.16.040, whichever is the least restrictive.

8. Adaptive Reuse. Community education facilities shall be permitted to operate within an existing structure, regardless of lot size, subject to the following conditions:

a. A valid use and occupancy permit was issued for the structure for use as a community education facility or a religious institution at any point within the previous five year period.

b. The property upon which the structure is located has not been subdivided since the cessation of the previous use as a community education facility or religious institution in such a manner so as to reduce the lot size below the minimum lot size for community education facilities provided in this section.

B. Vocational School.

1. Landscape Buffer Yard. Screening in the form of landscape buffer yard B shall be applied along common property lines.

2. Setback. Whenever a vocational school structure intended for vehicle repair, truck driving, manufacturing, production, or industrial equipment abuts a residential zone district or district permitting residential use, there shall be a minimum setback of fifty feet.

3. Street Standard. At a minimum, a vocational school shall have driveway access on a collector street. (Ord. BL2015-1098 §§ 2, 3, 2015; Amdt. 1 with Ord. BL2002-1273 § 6, 2003; Amdt. 1, 2 with Ord. BL2002-1171 § 6, 2002; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 4.2(B), 1997)

17.16.050 Office uses.

(Refer to zoning district land use table)

A. Financial Institution. Financial institutions in the MUN, MUN-NS, MUN-A, MUN-A-NS, ON, CN, CN-NS, CN-A, and CN-A-NS zoning districts shall be limited to two thousand five hundred square feet of gross floor area per establishment.

B. General Office. A general office shall be limited to two thousand five hundred square feet of gross floor area per establishment.

C. Leasing/Sales Office. A leasing/sales office shall be limited to two thousand five hundred square feet of gross floor area per establishment.

D. Alternative Financial Services.

1. No alternative financial services establishment shall be located less than one thousand three hundred twenty linear feet from the property line of another

property upon which another alternative financial services establishment is located. No more than one such establishment shall be located upon a single parcel.

2. Alternative financial services establishments in the MUN, MUN-NS, MUN-A, and MUN-A-NS zoning districts shall be limited to two thousand five hundred square feet of gross floor area per establishment. (Ord. BL2021-721 § 2, 2021; Ord. BL2019-111 § 1(Exh. A, §§ 21, 22), 2020; Ord. BL2018-1279 § 3, 2018; Ord. BL2016-132 § 5, 2016; Amdt. 1 to Ord. BL2016-117 § 4, 2016; Ord. BL2016-117 § 4, 2016; Ord. BL2015-1153 § 15, 2015; Ord. BL2014-908 § 3, 2014; Ord. BL2008-169 § 3, 2008; Ord. 96-555 § 4.2(C), 1997)

17.16.060 Medical uses.

(Refer to zoning district land use table)

A. Medical Office. Medical offices shall be limited to two thousand five hundred square feet of gross floor area per establishment, with no more than two establishments per lot.

B. Veterinarian. The building footprint of veterinary offices and facilities shall be limited to four thousand square feet. The following shall apply:

1. Animal boarding shall occur within completely enclosed structures.

2. Landscape Buffer Yard. Outdoor exercise yards shall be completely fenced and used only between seven a.m. and seven p.m. Where such outdoor activities abut a residential zone district or district permitting residential use, landscape buffer yard Standard B shall apply along common property lines. A six-foot opaque vertical fence may substitute for landscaping; however the buffer yard width of landscape buffer yard Standard B shall still apply along common property lines.

3. Boarding Kennel. Kennels for the boarding of companion animals not undergoing medical treatment are permitted as an ancillary use subject to the following conditions.

a. No more than thirty percent of the gross floor area of the veterinary clinic may be used as a boarding kennel.

b. No outdoor kennels or runs are permitted.

c. No part of any building or structure in which animals are housed shall be closer than fifty feet from any existing residence located on an adjacent parcel.

d. Cages. For a kennel, each animal shall have sufficient space to stand up, lie down and turn around without touching the sides or top of cages. Cages are to be of material and construction that permits cleaning and sanitizing. Cage floors of concrete, unless radiantly heated, shall have a resting board or some type of bedding.

e. Watering of Animals. All animals shall have fresh water available at all times. Water vessels shall be mounted or secured in a manner that prevents tipping and shall be of the removable type.

f. On-Site Waste Collection. All on-site waste shall be housed either within the kennel building or an accessory structure, and all waste shall be disposed of in a sanitary fashion no less frequently than one time per week. The drainage of all liquid by-products from the kennel shall be discharged into a permitted sanitary sewer line or septic tank and shall not be disposed of by way of storm sewers, creeks, streams, or rivers.

g. Building Temperature. Enclosures must be provided which shall allow adequate protection against weather extremes. Floors of buildings, runs, and walls shall be of an impervious material to permit proper cleaning and disinfecting.

h. Security Residence. The building footprint of an accessory security residence, if provided, shall be in addition to the maximum permitted building footprint of the veterinary clinic. All standards of Section 17.16.030(C) shall be met.

C. Outpatient Clinic. Outpatient clinics shall be limited to clinics with no more than six thousand square feet, with use being limited to occupational health, which is to be defined as those clinics that provide outpatient services limited to the treatment of minor work-related injuries, physical examinations and drug and alcohol screenings. (Ord. BL2022-1328 § 2, 2022; Ord. 2001-744 § 1, 2001; Ord. BL2000-480 § 1, 2000; Amdt. 1 with Ord. BL2000-242 § 1 (part), 2000; Ord. 96-555 § 4.2(D), 1997)

17.16.070 Commercial uses.

(Refer to zoning district land use table)

A. After Hours Establishments.

1. Street Standard. At a minimum, after hours establishments shall have driveway access on an arterial street.

2. Setback/Location Restrictions. No after hours establishment shall be located within five hundred feet from the property line of any residential property. Distances shall be measured in a straight line from the closest point of the after hours establishment building to the closest point of the residential property line.

B. Animal Boarding Facility.

1. Setback. No part of any building or structure in which animals are housed shall be closer than two hundred feet, and no kennel run shall be located within one hundred feet, from any existing residence.

2. Building Temperature. Enclosures must be provided which shall allow adequate protection against weather extremes. Floors of buildings, runs and walls shall be of an impervious material to permit proper cleaning and disinfecting.

3. Cages. Each animal boarded at the facility shall have sufficient space to stand up, lie down and turn around without touching the sides or top of cages. Cages are to be of material and construction that permits cleaning and sanitizing. Cage floors of concrete, unless radiantly heated, shall have a resting board or some type of bedding.

4. Runs. Each run must have at least a six-foot high fence completely surrounding it. Fences must be maintained in escape-proof condition. Runs shall provide an adequate exercise area and protection from the weather. All animal quarters and runs are to be kept clean, dry and in a sanitary condition.

5. Watering of Animals. All animals shall have fresh water available at all times. Water vessels shall be mounted or secured in a manner that prevents tipping and shall be of the removable type.

6. On-Site Waste Collection. All on-site waste shall be housed either within the kennel building or an accessory structure, and all waste shall be disposed of in a sanitary fashion no less frequently than one time per week. The drainage of all liquid by-products shall be discharged into a permitted sanitary sewer line or septic tank and shall not be disposed of by way of storm sewers, creeks, streams or rivers.

C. Automated Teller Machine (ATM). Where a drive-up ATM kiosk abuts a residential zone district or district permitting residential use, a minimum setback of twenty feet shall be provided and landscape buffer yard Standard B shall be applied within the setback.

D. Automobile Convenience.

1. Minimum Street Frontage. Each parcel shall have a minimum street frontage of one hundred feet on each abutting street.

2. Gasoline Pumps. Gasoline pumps shall be at least twenty feet from any property line and a minimum of twenty feet from any public right-of-way.

3. Automatic Car Wash.

a. One automatic car wash, capable of washing only one car at a time, shall be located fifty feet away from any residential zone district or district permitting residential use.

b. All washing facilities shall be located within a building which is enclosed except those openings necessary for vehicular and pedestrian access. Such openings shall not face any adjacent residentially zoned property.

c. If located within one hundred feet of a residential zone district or district permitting residential uses, operation of the establishment shall be prohibited prior to eight a.m. or after ten p.m. on any day of the week.

4. Mini-Marts. Mini-marts may be permitted on the site of a service station, including restaurants co-located within the same building. A mini-mart in the IWD, IR or IG shall be limited to two thousand five hundred square feet of gross floor area, maximum. Parking shall be provided for each separate use pursuant to Chapter 17.20, Article II.

5. Equipment Rental. Rental of equipment such as trailers and trucks shall be permitted subject to the following restrictions:

a. The rental equipment does not occupy or interfere with the required parking for the gas station, mini-market (and/or restaurants);

b. The rental of the equipment is clearly incidental and secondary to the main activity on the site; and,

c. The storage of any rental equipment shall be located fifty feet away from any residential zoning district boundary or the property line of any property containing a residential use, and shall not be located abutting a public right-of-way.

6. Outdoor Loudspeakers. There shall be no outdoor loudspeakers or public address systems.

7. Refuse Storage and Disposal. Trash areas shall be provided and screened on at least three sides from public view by an opaque impact-resistant fence of sufficient height to screen the dumpster(s).

8. Vehicle Sales or Storage. No vehicle may be stored or parked on the premises for the purpose of offering it for sale.

E. Automobile Repair.

1. There shall be a physical separation of any automobile display area or any parking area from the public right-of-way. The separation shall be provided by one of the following options:

a. A solid wall that is no less than 24 inches in height and no more than 36 inches in height. The wall shall be constructed of concrete, stone, split-faced masonry or similar materials; or

b. A fence that is no less than 24 inches in height and no more than 36 inches in height that includes solid masonry pillars with wrought iron or similar materials between pillars.

2. Driveways shall be consolidated if required by the metro traffic engineer.

3. Chain link fence, barbed wire, razor wire or similar fencing is prohibited within 25 feet of a public right-of-way.

4. Fencing or walls within 25 feet of a public right-of-way shall not be more than 36 inches in height.

5. Service doors facing any district that permits residential uses or a legally occupied residential structure shall be screened by a solid wall or opaque fence with a minimum height of six feet and no more than ten feet, in addition to any required landscape buffer yard.

6. All buildings, structures, inoperable vehicles, outdoor storage and automobile repair uses shall be located a minimum of 25 feet from any district boundary that permits residential uses or a legally occupied residential structure, and all buildings, structures, inoperable vehicles, outdoor storage and automobile repair uses shall be screened from any district boundary that permits residential uses or a legally occupied residential structure by a solid wall or opaque fence with a minimum height of six feet and no more than ten feet, in addition to any required landscape buffer yard.

7. Inoperable vehicles, outdoor storage and automobile repair activities shall be located to the rear or side yard and shall not be visible from any public right-of-way.

8. Billboards and/or digital signs are not permitted. On-premises ground signs shall be limited as follows:

Lot Frontage in Feet	Max Number of Signs	Max Sign Area	Max Height
Less than 100	1	64 sq. ft.	20 ft.
100—299	1	100 sq. ft.	20 ft.
>300	2 (with minimum 100' separation)	100 sq. ft.	20 ft.

9. No automobile repair establishment shall be located less than one thousand three hundred twenty linear feet from the property line of another property upon which another automobile repair establishment, automobile sales, used establishment, or automobile services establishment is located.

10. Automobile repair uses shall not be located within the floodplain or floodway, as designated on the current Flood Insurance Rate Map (FIRM) or any water quality buffer, as defined in the Stormwater Management Manual.

F. Automobile Sales, Used.

1. There shall be a physical separation of any automobile display area or any parking area from the public right-of-way. The separation shall be provided by one of the following options:

a. A solid wall that is no less than 24 inches in height and no more than 36 inches in height. The wall shall be constructed of concrete, stone, split-faced masonry or similar materials; or

b. A fence that is no less than 24 inches in height and no more than 36 inches in height that includes solid masonry pillars with wrought iron or similar materials between pillars.

2. Driveways shall be consolidated if required by the metro traffic engineer.

3. Chain link fence, barbed wire, razor wire or similar fencing is prohibited within 25 feet of a public right-of-way.

4. Fencing or walls within 25 feet of a public right-of-way shall not be more than 36 inches in height.

5. Service doors facing any district that permits residential uses or a legally occupied residential structure shall be screened by a solid wall or opaque fence with a minimum height of six feet and no more than ten feet, in addition to any required landscape buffer yard.

6. All buildings, structures, inoperable vehicles, outdoor storage and automobile repair uses shall be located a minimum of 25 feet from any district boundary that permits residential uses or a legally occupied residential structure, and all buildings, structures, inoperable vehicles, outdoor storage and automobile repair uses shall be screened from any district boundary that permits residential uses or a legally occupied residential structure by a solid wall or opaque fence with a minimum height of six feet and no more than ten feet, in addition to any required landscape buffer yard.

7. Inoperable vehicles, outdoor storage and automobile repair activities shall be located to the rear or side yard and shall not be visible from any public right-of-way.

8. Billboards and/or digital signs are not permitted. On-premises ground signs shall be limited as follows:

Lot Frontage in Feet	Max Number of Signs	Max Sign Area	Max Height
Less than 100	1	64 sq. ft.	20 ft.
100—299	1	100 sq. ft.	20 ft.
>300	2 (with minimum 100' separation)	100 sq. ft.	20 ft.

9. No automobile sales, used establishment shall be located less than one thousand three hundred twenty linear feet from the property line of another property upon which another automobile repair establishment, automobile sales, used establishment, or automobile services establishment is located.

10. Automobile sales, used uses shall not be located within the floodplain or floodway, as designated on the current Flood Insurance Rate Map (FIRM) or any water quality buffer, as defined in the Stormwater Management Manual.

G. Bar or Nightclub. Establishments shall be limited to two thousand five hundred square feet of gross floor area per establishment, with no more than one establishment per lot.

H. Bed and Breakfast Inn. The bed and breakfast inn shall be limited to no more than ten guest rooms.

I. Beer and Cigarette Market.

1. Location.

a. No beer and cigarette market use shall be located on a parcel less than one thousand three hundred twenty linear feet from the parcel line of another parcel upon which another beer and cigarette market use is located. No more than one such establishment shall be located upon a single parcel. This subsection shall not apply to beer and cigarette market uses located within the CF, CF-NS, or DTC zoning districts.

b. Within the CF, CF-NS, and DTC zoning districts, no beer and cigarette markets shall be located on a parcel less than five hundred feet from the parcel line of another parcel upon which another beer and cigarette market use is located. No more than one such establishment shall be located upon a single parcel.

c. No beer and cigarette market use shall be located on a parcel that is less than one hundred feet from a parcel upon which a religious institution, school or its playground, a park, or a licensed day care home or center or its playground is located. This subsection shall not apply to beer and cigarette market uses located within the CF, CF-NS, or DTC zoning districts.

d. Beer and cigarette market establishments selling alcoholic beverages with an alcoholic content of eight percent alcohol by weight or less shall also meet the regulations of Section 7.08.090 of the Metropolitan Code. Where the regulations of this subsection conflict with the regulations of Section 7.08.090, the more restrictive regulations shall prevail.

2. Signage. Window signage, including signs placed within, affixed to, in contact with, or located within three feet of a window or other opening and intended to be seen from the exterior, shall be limited to covering no more than twenty-five percent of the aggregate window space of each street facing facade. Such signage shall be subject to all regulations and restrictions contained within Chapter 17.32 of the Metropolitan Code of Laws.

3. Lighting. Lighting placed around the perimeter of a window, door, or other opening, either internal or external to the structure, that creates illumination that is plainly visible from the exterior of the structure shall be prohibited.

J. Boat Storage.

1. In the CL and CL-NS zoning districts, screening in the form of a Landscape Buffer Yard Standard B shall be applied along all residential zone districts and districts permitting residential uses. A twenty-five foot vegetation buffer shall be provided between any storage building and the closest residential property line. The maintenance standards set forth in Section 17.24.080 shall be applicable to all required landscaping.

2. In the CL and CL-NS zoning districts, no building on the property may exceed eighteen feet in height.

3. In the CL and CL-NS zoning districts, a boat storage use must be located within two miles of a public boat launching ramp. Such boat launching ramp shall provide access to a lake maintained by the U.S. Army Corps of Engineers. The parcel of land upon which the boat storage facility is located must be within a planned unit development (PUD) overlay district explicitly allowing boat storage as a permitted use.

4. In the CS and CS-NS zoning districts, a boat storage use is not permitted within the Urban Zoning Overlay (UZO).

5. In the CS and CS-NS zoning districts, a boat storage use must be located on a lot that does not exceed four acres in size.

6. In the CS and CS-NS zoning districts, no more than one hundred boat slips shall be permitted.

K. Car Wash.

1. There shall be a physical separation of any automobile display area or any parking area from the public right-of-way. The separation shall be provided by one of the following options:

a. A solid wall that is no less than 24 inches in height and no more than 36 inches in height. The wall shall be constructed of concrete, stone, split-faced masonry or similar materials; or

b. A fence that is no less than 24 inches in height and no more than 36 inches in height that includes solid masonry pillars with wrought iron or similar materials between pillars.

2. Whether automatic, free, self-service or by hand, the car wash structure (including wash bays) and any outdoor vacuuming machines or areas, shall be located a minimum of fifty feet from any residential zoned district or district permitting residential uses.

3. All washing facilities shall be located within a structure which is enclosed except those openings necessary for vehicular and pedestrian access. Such openings shall not face any adjacent residentially zoned property.

4. Car washing facilities shall be separated from adjacent property other than street frontage by a masonry wall of not less than six nor more than eight feet height. If adjacent property is commercially developed and a solid wall already exists on the property line, the zoning administrator may modify or waive this requirement as necessary to achieve the purpose of this section.

5. For facilities without defined stalls, a stall shall be calculated based on one stall being the equivalent to each twenty linear feet of washing area lane.

6. If located within 100 feet if a residential zone district or district permitting residential uses, operation of the establishment shall be prohibited prior to eight a.m. or after ten p.m. on any day of the week.

7. There shall be no outdoor loudspeakers or public address systems.

8. No vehicles may be stored or parked on the premises for the purpose of offering for sale.

9. Billboards and/or digital signs are not permitted. On-premises ground signs shall be limited as follows:

Lot Frontage in Feet	Max Number of Signs	Max Sign Area	Max Height
Less than 100	1	64 sq. ft.	20 ft.
100—299	1	100 sq. ft.	20 ft.
>300	2 (with minimum 100' separation)	100 sq. ft.	20 ft.

L. Custom Assembly.

1. In the MUN, MUN-NS, CN, CN-NS, CN-A, CN-A-NS, CA, CA-NS, SCN, SCN-NS zone districts, these activities shall be limited to two thousand five hundred square feet of gross floor area, and conducted only in completely enclosed buildings. No outdoor storage of materials or finished products shall be permitted.

2. In the MUL, MUL-NS, CL, CL-NS, CL-A, and CL-A-NS zone districts, custom assembly shall be limited to five thousand square feet of gross floor area per establishment.

3. In all zone districts, structures used for custom assembly activities shall not have any openings facing any residential zone district other than those required for emergency egress.

M. Donation Center, Drop-off.

1. Hours of operation. The donation center shall generally operate during the hours of nine a.m. to six p.m., seven days a week. Notwithstanding the foregoing provision to the contrary, the hours of operation may be adjusted to assure a high level of donor service and to maintain the premises in a clean and orderly manner.

2. No retail sales shall be conducted at the center.

3. No sorting or distribution of collected materials may occur on-site.

4. No hazardous materials, autos or auto parts, bathroom or kitchen fixtures, guns, large appliances, mattresses and box springs, carpeting, construction materials, or office equipment shall be accepted for donation.

5. All collected materials shall be picked up from the center at least once a week.

6. Illegally dumped items shall be picked up nightly, seven days a week, or as required to maintain a neat and orderly appearance.

7. Street Standard. At a minimum, donation centers shall have driveway access on an arterial street.

N. Electric Vehicle Charging Facility.

1. Screening. Where electric vehicle charging facilities are located on a lot adjacent to a residential zoning district, there shall be screening in the form of a standard D-5 landscape buffer yard, as described in Figure 17.24.240D, applied along common property lines. If located within 100 feet of a residential zoning district, there shall be screening with an opaque fence or wall a minimum of six feet in height.

2. Lighting. Exterior lighting shall comply with the standards set forth in Section 17.28.100. In addition, if located within 100 feet of a residential zoning district, exterior lighting shall be directed away from adjacent properties.

O. Home Improvement Sales. Each establishment shall be limited to five thousand square feet of gross floor area. In the MUN, MUN-NS, SCN, and SCN-NS zone districts, each establishment shall be limited to ten thousand square feet of gross floor area, maximum.

P. Nano Brewery.

1. No outdoor storage shall be permitted.

2. All beer production activities shall be within completely enclosed structures.

3. Loading Docks: Loading docks shall not be oriented toward the street. Where the site abuts an R and R-A, RS and RS-A, RM, RM-NS, MUN, MUN-NS, MUN-A, MUN-A-NS, OR, or OR-NS zoning district, the building wall facing such lot shall not have any loading docks oriented towards these districts. Where these districts abut all sides, the loading dock shall be screened by a solid wall or opaque fence with a minimum height of six feet, in addition to any required landscape buffer yard. Chain link fencing, barbed wire and razor wire is prohibited along such districts permitting residential use.

4. Service Doors: Any service doors facing a public street or a zoning district permitting residential use shall be screened by a solid wall or opaque fence with a minimum height of six feet, in addition to any required landscape buffer yard. Chain link fencing, barbed wire and razor wire is prohibited along such public street or district permitting residential use.

5. Waste/By-Products. All by-products or waste from the production of the beer shall be disposed of off-site.

Q. Mobile Storage Unit.

1. Within any calendar year, a lot of record shall have a maximum of one storage event for all units located on that lot. An event is defined as a storage period totaling no more than ninety days for all units. The storage period begins the day the first unit is located on the site and terminates ninety days thereafter regardless of how recently additional units may have been added to the existing storage area. If all units are removed prior to the ninety-day period on a lot, the storage period shall have been deemed to have occurred for that calendar year.

2. All units shall be maintained in a good state of repair and appearance.

3. All units shall be located at the rear or side of a building where excess parking exists.

4. No unit shall be located in or prevent the use of a required parking space or drive aisle.

5. No unit shall be stacked on top of another unit.

6. No signage or advertising may be placed on the unit except the name and phone number of the rental or leasing company from whom the unit is being leased or rented.

R. Pawnshop.

1. In the MUN, MUN-NS, ORI, ORI-NS, CN, CN-NS, CN-A, and CN-A-NS zone districts, each establishment shall be limited to five thousand square feet of gross floor area, maximum.

2. In the IWD, IR and IG zone districts, each establishment shall be limited to two thousand five hundred square feet of gross floor area, maximum.

3. No pawnshop establishment shall be located less than one thousand three hundred twenty linear feet from the property line of another property upon which another pawnshop establishment is located.

S. Mobile Vendor. This use shall be allowed according to the following standards:

1. This use shall be allowed only within a permanent, enclosed structure.

2. No tables, crates, cartons, racks or other devices shall be used outdoors to increase the selling or display capacity of the mobile vendor outside the permanently, enclosed structure.

T. Restaurant, Fast-Food/Restaurant, Full-Service/Restaurant, Take-Out.

1. Each establishment shall be limited to five thousand square feet of gross floor area, maximum.

2. In the MUN and MUN-NS districts, a restaurant, take-out, must be located within a permanent, enclosed structure.

U. Retail.

1. In the MUN, MUN-NS, ORI, ORI-NS, CN, CN-NS, CN-A, and CN-A-NS zone districts, each establishment shall be limited to five thousand square feet of gross floor area, maximum.

2. In the MUL, MUL-NS, SCN, and SCN-NS districts, each grocery store shall be limited to fifty thousand square feet, maximum. All other retail uses shall be no larger than twenty thousand square feet.

3. In the SCC and SCC-NS districts, each grocery store shall be limited to one hundred thousand square feet, maximum. All other retail uses shall be no larger than forty thousand square feet.

4. In the IWD, IR and IG zone districts, each establishment shall be limited to two thousand five hundred square feet of gross floor area, maximum, unless the retail is accessory to a Manufacturing, Artisan use and a portion of the products are created or assembled on site.

V. Self-Service Storage.

1. Each storage unit shall be fully enclosed by walls and roof and shall not exceed six hundred square feet in area.

2. Outdoor storage shall not be permitted, except for the parking of recreational vehicles, boats and trailers.

3. Storage units shall not be used for the manufacture, processing or assembly of goods, the sale of goods or personal services on the premises, or customer pickup. Active use or activities such as the practice of musical instruments shall not be permitted within individual storage units or anywhere else on site.

4. Storage units shall not have service door openings within thirty-five feet of a residential zone district.

5. Service doors facing a public street or a residential zone district shall be screened by a solid wall or opaque fence with a minimum height of six feet, in addition to any required landscape buffer yard. Chain link fencing, barbed wire and razor wire is prohibited along such public street or residential zone district.

W. Short Term Rental Property Not Owner-Occupied. STRP not owner-occupied is permitted with conditions (PC) in MUN and MUN-A, MUL and MUL-A, MUG and MUG-A, MUI and MUI-A, OG, OR20 through OR40-A, ORI and ORI-A, CN and CN-A, CL and CL-A, CS and CS-A, CA, CF, DTC North, DTC South, DTC-West, DTC Central, SCN, SCC and SCR.

1. All STRP not owner-occupied activity must be permitted in accordance with Metropolitan Code § 6.28.030.

2. Single-family and one and two-family zoning districts, all property improvements shall comply with the Chapter 17.12 (District Bulk Regulations) for single-family or two-family uses, depending on the number of units on the property.

X. Vehicular Rental/Leasing. This use shall be allowed as provided in the DTC zoning district. In the CF, CF-NS, SCR, and SCR-NS districts the use shall be limited to renting and/or leasing passenger automobiles, sport utility vehicles, pick-up-trucks (¾ ton or less), and small cargo work vans and passenger vans (gross vehicle weight rating of not more than ten thousand pounds), including incidental parking and servicing of these vehicles for rental or lease. No motorcycle, recreational vehicles, boats, recreational equipment, moving vans or moving trucks shall be rented or leased from the property. In addition, no "Automobile Repair" or "Scrap Operation" activities may occur on-site and no inoperable vehicles shall be stored on the property.

Y. Vehicular Sales and Service, Limited

1. There shall be a physical separation of any automobile display area or any parking area from the public right-of-way. The separation shall be provided by one of the following options:

a. A solid wall that is no less than 24 inches in height and no more than 36 inches in height. The wall shall be constructed of concrete, stone, split-faced masonry or similar materials; or

b. A fence that is no less than 24 inches in height and no more than 36 inches in height that includes solid masonry pillars with wrought iron or similar materials between pillars.

2. Driveways shall be consolidated if required by the metro traffic engineer.

3. Chain link fence, barbed wire, razor wire or similar fencing is prohibited within 25 feet of a public right-of-way.

4. Fencing or walls within 25 feet of a public right-of-way shall not be more than 36 inches in height.

5. Service doors facing any district that permits residential uses or a legally occupied residential structure shall be screened by a solid wall or opaque fence with a minimum height of six feet and no more than ten feet, in addition to any required landscape buffer yard.

6. All buildings, structures, inoperable vehicles, outdoor storage and automobile repair uses shall be located a minimum of 25 feet from any district boundary that permits residential uses or a legally occupied residential structure, and all buildings, structures, inoperable vehicles, outdoor storage and automobile repair uses shall be screened from any district boundary that permits residential uses or a legally occupied residential structure by a solid wall or opaque fence with a minimum height of six feet and no more than ten feet, in addition to any required landscape buffer yard.

7. Inoperable vehicles, outdoor storage and automobile repair activities shall be located to the rear or side yard and shall not be visible from any public right-of-way.

8. Billboards and/or digital signs are not permitted. On-premises ground signs shall be limited as follows:

Lot Frontage in Feet	Max Number of Signs	Max Sign Area	Max Height
Less than 100	1	64 sq. ft.	20 ft.
100—299	1	100 sq. ft.	20 ft.
>300	2 (with minimum 100' separation)	100 sq. ft.	20 ft.

(Ord. BL2025-958 § 3, 2025; Amdt. 1 to Ord. BL2025-908 § 2, 2025; Ord. BL2025-908 § 2, 2025; Ord. BL2020-187 §§ 1, 2, 2020; Amdt. to Ord. BL2019-78 § 1, 2020; Ord. BL2019-78 § 1, 2020; Ord. BL2019-111 § 1(Exh. A, § 23), 2020; Ord. BL2019-6 § 1, 2019; Ord. BL2019-1633 §§ 2—5, 2019; Ord. BL2018-1457 §§ 2, 3, 2019; Ord. BL2018-1183 §§ 1, 2, 2018; Amdts. 4—6, 8 to Ord. BL2017-608 § 7, 2018; Ord. BL2017-608 § 7, 2018; Ord. BL2016-267 § 3, 2016; Ord. BL2015-1153 §§ 15, 16, 2015; Ord. BL2015-1121 § 5, 2015; Ord. BL2015-1038 § 1, 2015; Ord. BL2014-908 § 4, 2014; Ord. BL2013-418 §§ 8—12, 2013; Ord. BL2012-312 § 2, 2012; Ord. BL2012-249 § 3, 2012; Amdt. 1 to Ord. BL2012-158 § 3, 2012; Ord. BL2012-158 § 3, 2012; Ord. BL2009-586 § 1(Exh. A, § 31), 2010; Amdts. 1, 2, to Ord. BL2008-299 § 3, 2008; Ord. BL2008-299 § 3, 2008; Ord. BL2008-169 § 3, 2008; Ord. BL2008-167 § 3, 2008; Amdt. 1 to Ord. BL2008-150 § 2, 2008; Ord. BL2008-150 § 2, 2008; Amdt. 1 to Ord. BL2006-1283 § 4, 2007; Ord. BL2006-1283 § 4, 2007; Amdt. to Ord. BL2006-973, 2006; Ord. BL2006-973 § 3, 2006; Ord. BL2006-972 § 3, 2006; Ord. BL2003-92 § 2, 2004; Ord. BL2001-674 § 1 (part), 2001; Ord. BL99-117 § 1 (part), 2000; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 4.2(E), 1997)

17.16.080 Communication uses.

(Refer to zoning district land use table)

A. Printing and Publishing. Each establishment shall be limited to five thousand square feet of gross floor area, maximum.

B. Communications Hut.

1. Maximum Building Size. The gross floor area shall be limited to a maximum of five hundred square feet.

2. Height. Height shall be limited to one story.

3. Required Setbacks. A minimum setback of thirty feet from residentially zoned property or public rights-of-way is required and is measured from the building to the property line.

4. Lighting. All light and glare shall be directed on-site to ensure surrounding properties are not adversely impacted by increases in direct or indirect lighting levels.

5. Landscaping.

a. Perimeter Landscaping. Perimeter landscaping is required around the outside of the fenced area, or for sites without fencing around the communications hut, when the communication hut is visible from residentially zoned property, public rights-of-way or on metro property used by the public, such as parks, greenways, schools and housing developments.

b. Landscape Materials. One tree shall be preserved or planted for each one hundred feet perimeter landscaping. Trees planted to meet this requirement shall measure a minimum of two inches in caliper, and six feet in height, as applicable for the type of material specified. The remaining area within the perimeter landscape strip shall be planted with one continuous row of evergreen shrubs which shall be expected to mature at a height not greater than two and one-half feet. The remainder of the area within all perimeter strips not occupied by trees or shrubs shall be covered by organic or mineral mulches, other shrubs, groundcover plants or grassed lawns.

c. Maintenance. Landscaping shall be maintained as outlined in Section 17.24.080.

6. Integration into Site. The communications hut may be integrated into a larger site design with walls or other enclosures with the approval of the department of the Metropolitan Government of Nashville Davidson County that owns the property. In cases of approved site design integration, landscaping and setback requirements may be waived by the zoning administrator.

C. Telecommunications Facility.

1. Application requirements. An applicant for a telecommunications facility, including co-locating on an eligible support structure or adding transmission equipment to an alternative structure shall provide the codes department and the historic zoning commission, for applications within Historic Overlays and/or public rights-of-way abutting a Historic Overlay, with the following information at the time of application for the final site plan or building permit (for eligible facilities requests, it is not necessary to meet the requirements of d through g, below):

a. A schematic site plan, including schematic landscape plan for any application where landscaping is required, and an elevation view of the type of facility to be placed on the site. The site plan shall depict where the facility is to be located on the site and where additional co-located communication equipment, shelters or vaults will be or can be placed.

b. If the application is not for collocation, a statement justifying why collocation is not possible. Such statement shall include:

(i) Such structure and technical information and other justifications as are necessary to document the reasons why collocation is not possible; and

(ii) The applicant shall provide a list of all eligible support structures and alternative structures considered as alternatives to the proposed location. The applicant shall provide a written explanation why the alternatives considered were impossible due to technical or physical alternatives.

c. Identification of any radio frequencies that would be utilized on the telecommunications facility. If any frequency is later changed, notice of the new frequency shall be provided to the Information Technology Services (ITS) Department.

d. The applicant shall demonstrate that through location, construction, or stealthing, the proposed facility or network of facilities will have minimum visual impact upon the appearance of adjacent properties and the views and vistas from adjacent residential neighborhoods and pedestrian environment, while retaining viable opportunities for future collocation, provided applications for designs consistent with the design guidelines provided for in subsection 5.f of this section shall be deemed to have met the requirement of this subsection.

e. Documentation of the number of other users that can be accommodated within the design parameters of the telecommunications facility as proposed.

f. A statement indicating the owner's commitment to allow feasible shared use of the facility within its design capacity for collocation.

g. The proposed site plan and design plans meet or exceed all applicable standards, including without limitation those of the Federal Communications Commission (FCC), American National Standards Institute (ANSI), and Institute of Electrical and Electronics Engineers (IEEE) standards for power density levels and structural integrity, American Concrete Institute (ACI), American Standards Testing and Materials Institute (ASTM), the National Electrical Code, and the American Steel Institute. The telecommunications facility must comply with build-

ing codes and other federal, state, and local regulations, Applicant must also comply with Section 106 of the National Historic Preservation Act of 1966.

2. Collocation Requirements. Collocation or location on existing alternative structures is required where possible. Applicants for a new Telecommunications Facility must explore all collocation opportunities and opportunities to locate their antenna on existing alternative structures. Applicant shall utilize eligible support structures first and then alternative structures.

3. Removal of Abandoned Telecommunication Facilities: Any telecommunication facility that is replaced with a new or updated telecommunication facility, including conduit, wire or cable, or any telecommunication facility permitted under this chapter that is not operated as a personal communication system carrier application for a continuous period of twelve months shall be considered abandoned and the owner of such telecommunication facility shall notify the Codes Department of the abandonment and remove same within ninety days. Failure to do so shall be deemed to be a violation of these regulations. The owner of the antenna or tower may appeal the decision of the department of codes administration to the board of zoning appeals, but at such hearing shall be required to show just cause why the antenna or tower should not be considered abandoned and subject to removal.

4. Telecommunication facilities outside of the public right-of-way.

a. Landscape Requirements: Along all residential zone districts and districts permitting residential use, screening in the form of Landscape Buffer Yard Standard A shall be applied.

(i) The following plants are prohibited from being used in any district, to buffer a telecommunications facility, including a new microwave or cellular tower due to problems with hardiness, maintenance, or nuisance: Kudzu Vine, Purple Loosestrife, Japanese Honeysuckle, Shrub Honeysuckle, Autumn Olive, Common Privet, Tree of Heaven, Lespedeza, Garlic Mustard, Paulownia, Multiflora Rose, Siberian Elm, Silver Poplar, Mimosa, Mulberry and Silver Maple.

(ii) The maintenance standards set forth in Section 17.24.080 shall be applicable to all required landscaping.

b. New support structures or substantial changes to eligible support structures 150' and greater, shall be designed to accommodate a minimum of three PWSF providers. This number shall be inclusive of any emergency management communication systems.

c. A permit for a COW is limited to thirty days, but when circumstances reasonably warrant, the permit may be renewed.

d. Additional provisions for substantial changes to eligible support structures or placement of new telecommunications equipment on alternative structures.

(i) New telecommunications equipment placements on alternative structures, shall be designed with screening and other stealth elements so as to minimize the visual impact from a pedestrian viewpoint within any abutting public right-of-way, excluding alleys, even after any eligible facilities request. Once said alternative structure is approved and becomes an eligible support structure, any subsequent modifications must meet established design guidelines. The maximum height of a tower shall be determined by the height standards of Chapter 17.12.

(ii) Communication equipment or any new structure that is integrated as an architectural feature of a structure so that the purpose of the facility for providing wireless services is not readily apparent to a casual observer or which is concealed within a building or structure so that it is architecturally indiscernible may be permitted in all zoning districts subject to building permit procedures and standards. Architecturally indiscernible shall mean that the addition or feature containing the antenna is architecturally harmonious in such aspects including but not limited to material, height, bulk, scale and design with the building or structure to which it is to be a part.

e. Additional provisions for towers.

(i) Setbacks. A tower shall be set back from all property lines on which the tower is located by the distance equal to the height of the lowest engineered break point on the proposed structure or the height of the tower.

(ii) Lights. No lights shall be permitted on a tower except such lighting that is required by state or federal law.

(iii) Height. The maximum height of a tower shall be determined by the standards of Chapter 17.12. Guy wire anchors, if used, shall be set back a minimum of five feet from all property lines.

(iv) Final Site Plans: Final site plans for a tower shall be accompanied by a certification from a qualified structural engineer that the tower has sufficient structural integrity and equipment space to accommodate multiple users shall be required at the time of applying for a building permit.

(v) Notification. Prior to the issuance of a zoning permit, and immediately after receiving an application for a new tower, the zoning administrator shall notify the district councilmember that an application for a new tower has been submitted. Such notification shall only be required when a tower is proposed within a residential district, a district permitting residential uses (excluding the MUI, MUI-NS, MUI-A, MUI-A-NS, ORI, ORI-NS,

ORI-A, ORI-A-NS, CF, CF-NS, DTC, SCR, and SCR-NS districts), or within one thousand feet of the zoning boundary line of a residential district or a district permitting residential uses. Such notification shall also be required when a telecommunications facility is within a Historic Overlay District or right-of-way abutting a Historic Overlay District. Within thirty days from the date on which the tower application was filed, the district councilmember may hold a community meeting on the proposed tower. If a meeting is held, the applicant shall attend and provide information about the tower's safety, technical necessity, visual aspects, and alternative tower sites and designs considered.

(vi) When an application to construct a new tower is received, the department of codes administration shall consult with the district councilmember, and the councilmember may request that the applicant accommodate tornado sirens and their associated equipment to further the public interest, as well as equipment needed for First Net. The councilmember's request shall be submitted in writing to the applicant within fifteen business days from the date the application was submitted to the Department of Codes Administration, and the request shall be accompanied by a written statement from the mayor's office of emergency management that a siren is needed in the area where the tower is to be located and that the proposed tower site is suitable for a siren. The applicant shall make good faith efforts to comply with this request, provided that if such use materially increases the cost of the tower, requires utilization of land otherwise reserved for additional wireless carriers on the tower, or would otherwise delay the permitting of the proposed tower, the applicant shall not be required to consider such request. Because tornado sirens require additional tower space and have varying design qualities, applicants will be allowed a fifty percent increase in height over the otherwise applicable height limitation and will not be required to utilize camouflaged designs, but shall comply with all applicable landscaping standards set forth in this section. This subsection applies to tornado sirens only and is not applicable for other public safety tower uses.

5. Telecommunication facilities within public rights-of-way.

a. Support structures and above-ground transmission equipment are prohibited within the pedestrian travelway, but may be located within a grass strip/green zone or frontage zone. For substantial changes to eligible support structures or for new telecommunications use of an alternative structure, the eligible support structure or alternative structure shall be relocated outside of the pedestrian travelway and all above-ground utilities consolidated with the permit application. For eligible support structures that already have wireless telecommunications facilities on them, the structure need not be relocated unless it exceeds the zoning height limitation set in subsection 17.16.080.C.5.d., unless such structure is owned by the metropolitan government.

b. No new telecommunication facility support structure may be erected in the public right-of-way within 500' of an existing telecommunication support structure. The term "new telecommunications facility support structure" as used in this subsection shall not include a relocation and/or replacement of a pole pursuant to Section 17.16.080.C.5.a.

c. New telecommunication facilities or relocated telecommunication facilities pursuant to subsection 17.16.080.C.5.a. shall place all transmission equipment, excluding antennas and remote radio units, underground to the extent possible consistent with departmental regulations. To the extent transmission equipment cannot be placed underground, business justification, excluding cost, for this must be provided.

d. New telecommunication facility support structures may not be erected to a height greater than the height surrounding utility poles or street lights, whichever is greater. If no utility poles are present, the total height shall be built to a maximum height of 35', including antennas, lightning rods or other extensions. All new proposed structures, or a stealth telecommunications support structure replacing an existing support structure or alternative structure, within the ROW shall be designed for a minimum of two PWSF providers.

e. A permit for a COW is limited to five days, but when circumstances reasonably warrant, the permit may be renewed.

f. Telecommunication facilities shall be constructed consistent with the design requirements of the planning Department, and, where applicable, the historic zoning commission. The design guidelines will provide greater detail, description and examples of acceptable telecommunications facilities, including visual descriptions. The requirements in this section shall be in addition to those required by Chapter 6.26 of the Metropolitan Code.

6. Recommendations and other actions from departments of the metropolitan government. Prior to the consideration of a variance for or issuance of a permit for a telecommunication facility, the following departments of the metropolitan government shall submit recommendations or approvals to the zoning administrator that describe compliance with all applicable design guidelines or other regulations:

a. Metropolitan Development and Housing Agency (MDHA) shall provide a recommendation within a redevelopment district and/or public rights-of-way abutting a redevelopment district,

b. Metro historic zoning commission shall provide a preservation permit within a historic overlay,

c. Planning commission shall provide a recommendation for property within the downtown code, a planned unit development, urban design overlay, institutional overlay, specific plan, contextual overlay, or neighborhood landmark district,

d. The department of information technology services shall provide a recommendation on all permits, with regard to the issue of interference with metropolitan government facilities. (Ord. BL2019-111 § 1(Exh. A, § 24), 2020; Ord. BL2016-415 § 3, 2016; Ord. BL2014-747 § 3, 2014; Ord. BL2011-898 § 11, 2011; Ord. BL2009-586 § 1(Exh. A, § 32), 2010; Amdt. 1 to Ord. BL2009-462, § 1, 2009; Ord. BL2009-462, § 1, 2009; Ord. BL2003-1304 §§ 1, 2, 3, 4, 2003; Amdt. 1 with Ord. BL99-117 § 1 (part), 2000; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 4.2(F), 1997)

17.16.090 Industrial uses.

(Refer to zoning district land use table)

A. Artisan Distilleries.

1. The maximum volume of alcohol distilled on site, regardless of ABV is limited to thirty-eight thousand seven hundred fifty gallons per month.

2. The maximum volume of alcohol, regardless of ABV, on site shall not exceed fifty-five thousand gallons.

3. The milling of grain is not permitted on site.

B. Building Contractor Supply.

1. No outdoor storage shall be permitted.

2. Loading Docks. Where the site abuts a residential zone district or district permitting residential use, the building wall facing such lot shall not have any service door openings or loading docks oriented toward the residential zone district.

3. Landscape Buffer Yard. Where such facilities are on a lot adjacent to a residential zone district or district permitting residential use, there shall be screening in the form of landscape buffer yard Standard D applied along common property lines.

4. Maximum Building Size. The gross floor area shall be limited to twenty-five thousand square feet.

C. Distributive Business/Wholesale.

1. No outdoor storage shall be permitted.

2. Loading Docks. Where the site abuts a residential zone district or district permitting residential use, the building wall facing such lot shall not have any service door openings or loading docks oriented toward the residential zone district.

3. Landscape Buffer Yard. Where such facilities are on a lot adjacent to a residential zone district or district permitting residential use, there shall be screening in the form of landscape buffer yard Standard D applied along common property lines.

4. Maximum Building Size. The gross floor area shall be limited to twenty-five thousand square feet.

D. Manufacturing, Artisan.

1. Outdoor Storage. Any activity storing materials outdoors shall construct an opaque fence to screen the ground-level view from any public right-of-way or of any residential use. Materials shall not be piled or staked higher than the opaque fence.

2. Loading Docks. Where the site abuts a residential zone district or a district permitting residential use, the building wall facing such lot shall not have any service door openings or loading docks oriented toward the residential zone district or district permitting residential use.

E. Manufacturing, Light. All light manufacturing activities shall be within completely enclosed structures.

1. No outdoor storage shall be permitted.

2. Loading Docks. Where the site abuts a residential zone district or district permitting residential use, the building wall facing such lot shall not have any service door openings or loading docks oriented toward the residential zone district.

3. Landscape Buffer Yard. Where such facilities are on a lot adjacent to a residential zone district or district permitting residential use, there shall be screening in the form of landscape buffer yard Standard D applied along common property lines.

4. Maximum Building Size. The gross floor area shall be limited to forty thousand square feet.

F. Manufacturing, Medium. Any medium manufacturing activity storing materials outdoors shall construct an opaque fence to screen the ground-level view of any residential use located in a zoning district permitting residential uses. Materials shall not be piled or stacked higher than the opaque fence.

G. Tank Farm.

1. Setback. Where the tank farm abuts a residential zone district or district permitting residential use, a minimum setback of one hundred feet shall be provided.

2. Landscape Buffer Yard. Landscape buffer yard Standard D shall be applied within the above setback.

3. The tank farm shall comply with National Fire Protection Association standards.

4. A tank farm shall be permitted unlimited storage per Table 17.28.102 of this code provided all other conditions of this section and code are satisfied.

H. Warehouse.

1. Outdoor Storage. No outdoor storage shall be permitted.

2. Loading Docks. Where the site abuts a residential zone district or district permitting residential use, the building wall facing such lot shall not have any service door openings or loading docks oriented toward the residential district.

3. Landscape Buffer Yard. Where such facilities are on a lot adjacent to a residential zone district or district permitting residential use, screening in the form of landscape buffer yard Standard D shall be provided along common property lines.

4. Maximum Building Size. The gross floor area shall be limited to twenty-five thousand square feet.

5. Historic Eligibility. Only a nonresidential structure in the MUL, MUL-NS, MUL-A, MUL-A-NS, MUG, MUG-NS, MUG-A, MUG-A-NS, MUI, MUI-NS, MUI-A, and MUI-A-NS districts can be used for a warehouse and distributive business/wholesale use. The historical commission must have determined the structure is worthy of conservation, was constructed more than fifty years ago, and is being preserved with no additions, deletions or alterations which modify the building's square footage or significantly alters the building's exterior appearance (i.e. blocking out windows with brick or other material).

I. Sex Clubs.

1. No sex club shall be located within one thousand feet (measured property line to property line) of a residence, community education facility, day care, park, or religious institution.

2. Sex clubs shall be prohibited from all of the following:

a. Admitting members that are younger than twenty-one years of age;

b. Admitting any new member without the affirmative vote of a majority of the other members;

c. Accepting applications for membership without a current member's written recommendation; and

d. Granting membership within twenty-four hours from the time a membership application is filed. (Ord. BL2019-111 § 1(Exh. A, § 25), 2020; Ord. BL2016-327 § 2, 2016; Ord. BL2015-1121 § 3, 2015; Ord. BL2015-1099 § 3, 2015; Ord. BL2013-418 § 13, 2013; Ord. BL2011-898 § 12, 2011; Amdt. 1 to Ord. BL2010-647; Ord. BL2010-647 § 2, 2010; Ord. BL2006-972 § 3, 2006; Amdt. 1 with Ord. BL99-117 § 1 (part) 2000; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 4.2(G), 1997)

17.16.100 Utility uses.

(Refer to zoning district land use table)

A. Power/Gas Substation.

1. Setback. All buildings and vehicle loading areas shall be located a minimum of fifty feet from any residential zone district or district permitting residential use.

2. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied.

3. Street Standard. On minor local streets, driveway access shall be permitted only if the minor local street intersects an arterial or collector street within the same block.

B. Reservoir/Water Tank.

1. Setback. Where such facilities abut a residential zone district or district permitting residential use, a minimum setback of fifty feet shall be provided.

2. Landscape Buffer Yard. Landscape buffer yard Standard D shall be applied within the above setback.

C. Wind Energy Facility (small).

1. Applicability. The wind energy facility shall comply with the standards of this title; however, where a facility cannot comply, the applicant shall be required to submit for a special exception permit. The special exception permit request shall be accompanied by a written document that identifies and describes the facility's compliance with the standards. Where compliance is not possible, the document will detail why the standards cannot be met, and what alternative standards are proposed by the applicant.

2. Height. The height of any facility, whether building or tower-mounted, shall not exceed fifteen feet above the maximum building height allowed for the primary use in the subject zoning district as provided in this title.

3. Setback. The facility shall not be sited within (a) a distance equal to the height of the facility from any occupied buildings, or private ways that are not part of the wind energy facility; or (b) one point five times (1.5×) the facility's height from the nearest property line, whichever is greater.

4. Guy Wires. No guy wire anchors shall extend closer than five (5) feet to the property line. All outer and innermost guy wires must be must be marked and clearly visible to a height of six (6) feet above the guy wire anchors.

5. Signs and Advertising. An information sign identifying the facility owner, facility manufacturer, and a 24-hour emergency contact phone number, along with warning sign(s) shall be required on the facility. In addition, an educational sign may be provided about the facility and the benefits of renewable energy. All such signs shall comply with the base zoning district's sign

regulations for a non-residential use as provided in this title. No other advertising signs shall be allowed on or around the facility.

6. Lighting. No lighting of the facility shall be permitted, except warning lights as required by state or federal law.

7. Appearance. All components of the facility shall be in a neutral, non-reflective exterior color designed to blend with the surrounding environment.

8. Noise. The facility shall not generate noise in excess of 60 decibels (dBA) measured at the closest neighboring occupied building, except during short-term events such as utility outages and severe windstorms.

9. Separation Distance. The facility shall be located a minimum of 1,000 feet from any other wind energy facility.

10. Shadow, Blade Glint, and Flicker. The facility shall be sited to minimize shadow, blade glint, and flicker impacts on any property within a minimum distance of 600 feet of the site property line.

11. Utility Notification Plan. No wind energy facility shall be installed until the Nashville Electrical Service approves the applicant's site plan.

12. Emergency Plan. The facility shall have an automatic braking, governing, or feathering system to prevent uncontrolled rotation, overspeeding and excessive pressure on the tower structure, rotor blades and turbine components.

13. Site Plan. No wind energy facility shall be erected, constructed, installed or modified as provided in this section without first undergoing site plan review and obtaining a building permit. All plans and maps shall be prepared, stamped and signed by a professional engineer licensed to practice in Tennessee as a mechanical, structural, or civil engineer. The required site plan shall show, identify, display, dimension, and/or demonstrate the following:

a. All property lines and existing buildings/structures on site and within 600 feet of the site. For buildings/structures, the purpose of each will be labeled on the plan as well as the distance of each from the facility.

b. Location of the proposed tower, foundations, guy anchors, access roads, and associated equipment on the site parcel and within 600 feet of its boundary.

c. Any existing overhead utility lines;

d. Existing areas of tree cover, including average height of trees, on the site parcel and any adjacent parcels within a distance, measured from the wind turbine foundation, of 1.2 times the height of the wind turbine;

e. Location of each existing wind energy facility, regardless of size or operational condition that are within 2,000 feet of the proposed facility.

f. Proposed changes to the landscape of the site, grading, screening, vegetation clearing and planting, any required FAA lights;

g. Tower foundation blueprints or drawings signed by a professional engineer licensed to practice in the State of Tennessee as a mechanical, structural, or civil engineer demonstrating the facility is designed to meet the most stringent wind requirements;

h. A statement by an engineer licensed in the State of Tennessee certifying that the proposed wind turbine will meet the noise standard established by this section. The engineer shall be certified by the Institute of the Noise Control Engineering of the USA (INCE/USA).

i. One or three line electrical diagram detailing wind turbine, associated components, and electrical interconnection methods, with all National Electrical Code compliant disconnects and overcurrent devices;

j. Documentation of the wind energy facility's manufacturer and model, rotor diameter, tower height, tower type (freestanding or guyed), and foundation type/dimensions;

k. Photo visualizations of the facility pre- and post-construction shall be provided by the applicant in color showing how the facility will look, once installed. The visualizations will be from a minimum of three sight lines, including the nearest occupied building with a view of the wind facility, excluding buildings owned by the applicant or property owner.

l. An operation and maintenance plan shall be submitted for the facility. (Amdt. 1 to Ord. BL2009-477 § 3, 2009; Ord. BL2009-477 § 3, 2009; Ord. 96-555 § 4.2(H), 1997)

17.16.105 Transportation uses.

(Refer to zoning district land use table)

A. Airport, Medium or Large Commercial Service.

1. Minimum Area. The combined minimum area of all parcels shall be three thousand acres.

2. Setback. Where transportation facilities, excluding passenger car parking lots, abut a residential zone district or district permitting residential use, there shall be a minimum setback of five hundred feet.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied along common property lines.

4. Street Standard. At a minimum, airport land uses shall have driveway access on nonresidential collector streets. A traffic impact study shall demonstrate that the traffic generated will use only streets that function at, or better than, a level of service (LOS) D.

B. Park and Ride Lot.

1. Location. The park and ride lot shall be associated only with a nonresidential use located within a residential zoning district.

2. Street Standard. At a minimum, the parking lot shall have driveway access on a collector street.

3. Shared Parking Agreement. Pursuant to Section 17.20.010, a shared parking agreement shall be required for all "park and ride lots" in residential zoning districts. The nonresidential use, whose parking lot is proposed as a park and ride lot, must have a peak parking demand that falls outside of the hours of 6:30 a.m. to 6:30 p.m.

4. Lighting. All lots shall be lighted from dusk to dawn, and all light and glare shall be directed on-site.

5. Telephone. One public pay phone shall be provided on-site, in a visible area with lighting.

6. Waste Receptacles. Waste receptacles, at a rate of one receptacle per twenty-five parking spaces, shall be provided in the lot, in a fixed manner, to prevent trash from blowing onto public rights-of-way or into adjacent residential areas, and receptacle contents will be properly disposed of once a week. (Ord. BL2019-32 § 3, 2019; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998)

17.16.110 Waste management uses.

(Refer to zoning district land use table)

A. Construction/Demolition Landfill.

1. Lot Size. The minimum lot area shall be one acre.

2. Street Standard. Driveway access can be from any local street, provided that street is not bounded by any residential zoning district from the driveway access point to the street's intersection with a collector or arterial street or a street designated on the major street plan.

3. Setback. All buildings, structures, storage containers and areas, and vehicle loading/unloading areas shall be located a minimum of one hundred feet from any property line, two hundred fifty feet from any residential zoning district boundary, and five hundred feet from any residential structure, and further, the facility shall not be located less than two thousand feet from the property line of any school or park.

4. Landscape Buffer Yard. Along all adjacent residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied. In addition, the entire facility shall be enclosed by a chain-link-type fence constructed in conformance with Section 16.24.330 of the Metropolitan Code at least eight feet in height. The fence shall be patrolled each day to remove all windblown debris captured by the fence.

5. Recycling Facility. If located on the same lot as the construction/demolition landfill, a recycling facility shall be permitted as an accessory use provided it accepts construction/demolition waste only. The provisions of Section 17.16.110.D. shall not apply to an accessory use.

a. All loading, unloading, compacting, sorting, processing or storage shall take place within a completely enclosed building.

6. Approval of the Metropolitan Council. Approval by the metropolitan council in accordance with Tennessee Code Annotated § 68-211-701, et seq. shall be required.

B. Medical Waste.

1. Lot Size. The minimum site area shall be five acres.

2. Street Standard. Driveway access can be from any local street, provided that street is not bounded by any residential zoning district from the driveway access point to the street's intersection with a collector street or a street designated on the major street plan.

3. Setback. All buildings, structures, storage containers and areas, and vehicle loading/unloading areas shall be located a minimum of one hundred feet from any property line, two hundred fifty feet from any residential zoning district boundary, and five hundred feet from any residential structure, and further, the facility shall not be located less than two thousand feet from the property line of any school or park.

4. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied. In addition, the entire facility shall be enclosed by a chain-link-type fence at least eight feet in height. The fence shall be patrolled each day to remove all windblown debris captured by the fence.

5. All loading, unloading, compacting, sorting, processing or storage shall take place within a completely enclosed building.

C. Construction/Demolition Waste Processing (Project-Specific).

1. Applicability. The provisions of this section shall apply to any land use within Davidson County. No construction/demolition waste processing activity shall take place on any site that fails to comply with the provisions of this subsection.

2. Waste Reduction and Recycling Plan: The applicant shall submit a plan to the director of public works and the director of codes administration for their

joint review and approval describing and detailing how the project site and its construction and demolition waste will be gathered, separated, processed, and transported, including items a. through p. below. Additional information may be required by the reviewing agencies to ensure the property can safely and suitably handle the project's construction and demolition waste.

a. Waste Manager. The plan shall designate and identify a person who will be responsible for all construction demolition waste management, including their name, title, mailing address, e-mail address, fax number, and 24/7 phone number to respond and handle all concerns involving the site's recycling methods, processes, materials, and flow of debris on and off-site;

b. Waste Processing Location. The location where the project contractor shall divert construction and demolition debris for purposes of recycling, salvaging, and disposing of materials recovered from demolition of existing, or construction of new, buildings and structures on the project site.

c. Lot Size. There is no minimum lot size for properties with a nonresidential base zoning district. For those properties with an agricultural or residential base zoning district, the waste processing location shall be at least ten times the base zoning district, or a minimum of one acre, whichever is less.

d. Operation Timeline. The operating timeline for waste processing on the property from the initial start-up date to completion date, including any relevant milestone dates. A property shall have all waste processing equipment, materials, and ancillary items removed from it within ninety days of project completion, as defined in this title.

e. Hours of Operation. The hours of operation for all activities to occur on the property, including a statement of compliance with Chapter 16.44 (Noise Control) of the Metropolitan Code of Laws;

f. Materials and Storage. A completed waste reduction and recycling schedule in a form and content established by the director of public works, but at a minimum, it shall provide the following information for both the project-specific site and any off-site location:

i. The type and estimated quantity of materials, including putrescible waste, to be generated, recovered, reused, salvaged, separated and processed on-site as well as off-site, including those materials that will be sold on the premises or off-site;

ii. The on-site separation and storage method(s) to ensure salvaged materials are not contaminated before being reused on-site, transferred to an off-site location for further salvage or storage, or sold or given away to other entities;

iii. The method and frequency of collection for the materials noted above;

iv. The number of cubic yards to be stored on-site at any one time of processed and unprocessed materials;

v. The on-site storage method for each of the materials noted above;

vi. The on-site storage location for each of the materials noted above;

vii. The recycling facilities and landfills that will receive materials noted above;

viii. The hauling companies that will transport the materials noted above.

g. Sale of Materials. Materials from the site that have been recycled, salvaged, recovered, or excavated may be given away, sold on the premises, or removed for reuse.

h. Trash Dumpsters. The location of all trash dumpsters on the property for waste not to be recovered and/or generated.

i. Public Health and Environment. A description of the on-site storage method and off-site transport methods that will be used to prevent dirt and materials from creating drift or becoming airborne, producing odors, leaking, littering, or generating run-off due to wet conditions due to weather or man-made activities so as not to create a health hazard, public nuisance, or fire hazard. All activities shall comply with all rules and regulations of the Tennessee Department of Conservation and Environment, Metropolitan Government Stormwater Regulations, and all other applicable local, state and federal laws and regulations.

j. Security. A description of how the property will be secured to prevent illegal theft of materials and dumping, including lighting.

k. Signage. A large and prominent sign measuring at least thirty-two square feet in size shall be installed on the project site's primary street frontage. At a minimum, the sign shall identify the project name, contact name, 24/7 contact phone number, project completion date, quantity and type of materials to be recycled and salvaged. If an off-site recycling location shall be used, the same sign shall be installed at that location too. Sign(s) shall be approved by the Metro Planning Department, prior to the issuance of any grading or demolition permits.

l. Inactivity. A property shall be deemed inactive by the director of codes administration, if no activity has occurred on the property during any six consecutive months, regardless of the calendar year in which such inactivity occurred. Once deemed inactive, all waste processing activities shall cease until a new application

for the project specific waste processing has been submitted, reviewed, and approved by the reviewing agencies.

m. Waste Management Summary Report. Six months after the initial approval of the waste reduction and recycling plan, and every six months thereafter, the applicant shall submit to the directors of public works and codes administration a waste management summary report in a form and content established by the director of public works. At a minimum, the report shall provide the following information and documentation verifying the type and actual tonnage of materials generated, recovered, reused, salvaged, separated, discarded, and processed on-site as well as off-site.

n. Notification. Prior to the issuance of a zoning permit, and immediately after receiving an application for a new or relocated construction/demolition waste processing (project-specific) use, the zoning administrator, shall notify the district councilmember that an application for such use has been submitted. Such notification shall only be required when the use is proposed within an agricultural or residential zoning district, or within one thousand feet of an agricultural or residential zoning district boundary line.

o. Noncompliance. The directors of public works and codes administration shall determine if the applicant has complied with the approved waste reduction and recycling plan. If it is determined that the applicant has failed to comply with the applicant's waste reduction and recycling plan, the performance security shall be forfeited.

p. Performance Security. The submittal of a letter of credit or cashier's check as performance security to the director of public works in an amount specified by the director for the removal of waste processing equipment, materials, and ancillary items. All forfeited performance securities shall be used for the purposes of making the property safe for public health and well-being and to promote recycling within Davidson County.

D. Recycling Facility.

1. Lot Size. The minimum lot area shall be one acre.

2. Setback. All buildings, structures, storage containers and areas, and vehicle loading/unloading areas shall be located a minimum of one hundred fifty feet from any zoning district boundary that permits residential uses or a legally occupied residential structure.

3. Landscape Buffer Yard.

a. Along all residential zoning districts permitting residential use, opaque fencing at least eight feet in height shall be constructed in compliance with the terms of Section 17.24.210(G) of the landscape buffer yard requirements. The fencing requirements set forth herein shall supercede the setback requirements for screening walls and fencing contained in Section 17.12.040. Screening in the form of landscape buffer yard Standard D shall be applied outside any required opaque fencing.

b. For facilities not adjacent to a zoning district that permits residential uses, the entire facility shall be enclosed by a chain-link type fence at least eight feet in height. The fence shall be patrolled each day to remove all windblown debris captured by the fence.

4. Street Standard. Driveway access can be from any local street, provided that street is not bounded by any residential zoning district from the driveway access point to the street's intersection with a collector street or a street designated on the major street plan. A traffic impact study shall demonstrate that traffic generated to/from the site will only use streets where the existing level of service (LOS) is "D," and it is forecasted to remain at a LOS D or better with the proposed recycling facility traffic.

5. All compacting, sorting, processing or storage shall take place within a completely enclosed building. The term "completely enclosed building" means a structure with at least four walls and is totally enclosed when all doors are closed. The enclosed area(s) of a recycling facility shall have concrete floors or floors made of some other hard material that is easily cleanable. All loading and unloading shall take place:

a. On a partially enclosed loading dock when the loading dock connects directly to the completely enclosed building in which compacting, sorting, processing or storage takes place; or

b. Within a Completely Enclosed Building. If a recycling facility utilizes a loading dock for loading and unloading, the loading dock shall not be used for storage and shall be cleaned of all materials at the close of each business day. The areas around loading docks and other high-traffic areas shall be paved.

6. Hours of Operation. The hours of operation for any recycling facility located adjacent to a zoning district that permits residential uses shall be limited to 7:00 a.m. to 6:00 p.m.

7. Lighting. For any recycling facility located adjacent to a zoning district that permits residential uses, all light and glare shall be directed on-site to ensure that surrounding properties are not adversely impacted by increases in direct or indirect ambient lighting levels.

E. Sanitary Landfill.

1. Lot Size. The minimum lot area shall be one hundred acres.

2. Setback. All buildings, structures, storage containers and areas, and vehicle loading/unloading areas shall be located a minimum of one hundred feet from any property line, two hundred fifty feet from any residential

zoning district boundary, and five hundred feet from any residential structure, and further the facility shall not be located less than two thousand feet from the property line of any school or park.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied along common property lines.

4. Street Standard. At a minimum, driveway access shall be from a collector street. The collector street shall not be bounded by any residential zoning district from the driveway access point to the street's intersection with an arterial street. A traffic impact study shall demonstrate that traffic generated to/from the site will only use streets where the existing level of service (LOS) is "D," and it is forecasted to remain at a LOS D or better with the proposed landfill traffic.

5. Approval of the Metropolitan Council. Approval by the metropolitan council in accordance with Tennessee Code Annotated § 68-211-701, et seq. shall be required. (Ord. BL2017-799 §§ 3, 4, 2017; Ord. Bl2014-772 § 1, 2014; Ord. BL2010-635 § 3, 2010; Amdt. 1 to BL2010-634; Ord. BL2010-634 § 1, 2010; Ord. BL2004-156 § 1 (part), 2004; Amdt. 1 with Ord. BL2002-1273 §§ 1, 2, 2003; Amdt. 1, 2 with Ord. BL2002-1173 §§ 1, 2, 2002; Amdt. 1 (part) with Ord. BL99-86 § 1, 2000; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 4.2(I), 1997)

17.16.120 Recreation and entertainment uses.

(Refer to zoning district land use table)

A. Convention Center/Stadium/Arena.

1. Lot Size. The minimum lot area shall be fifteen acres.

2. Setback. Where the structure and related facilities, excluding passenger car parking lot, abut a residential zone district or district permitting residential use, there shall be a minimum setback of two hundred fifty feet.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied along common property lines.

4. Street Standard. At a minimum, primary access shall be from a nonresidential collector street which has primary access to a street designated on the major street plan.

5. Traffic Management Study. A traffic management study shall be required.

B. Driving Range.

1. Street Standard. At a minimum, driveway access shall be from a collector street.

2. Location. The driving range shall be located so that it is one hundred feet away from any residential zoning district boundary or the property line of any property containing a residential use.

3. Lighting. All light and glare shall be directed on-site to ensure surrounding properties are not adversely impacted by increases in direct or indirect ambient lighting levels.

4. Retail/Restaurant. A snack-bar and pro-shop shall be permitted on the same parcel as the principal use provided it is contiguous to the area where people stand to drive golf balls. The combined area of the snack-bar and pro-shop shall not exceed one thousand five hundred square feet. The snack-bar shall not provide any sit-down food service or alcoholic beverages.

5. Fencing. Adequate fencing shall be provided to ensure golf balls do not fly into abutting or adjacent properties and streets.

C. Park.

1. Location. Notwithstanding any other provision of the Metropolitan Code of Laws, no new park, as herein defined, shall henceforth be constructed within two thousand feet of the property line of any landfill or other waste disposal facility.

D. Small Outdoor Music Event.

1. Setback. The stage and sound amplification equipment shall not be oriented toward any residence located within three hundred feet of the property line upon which the small outdoor music event is to be held. Further, sound amplification equipment shall be oriented so that sound is directed away from the closest residential property. For purposes of this subsection, "sound amplification equipment" means small portable sound systems of maximum three hundred watts, microphones, and amplified acoustic musical instruments.

2. Noise. A maximum noise level of seventy-five decibels on the A-weighted scale shall be permitted to occur at the boundary line of the nearest residential property.

3. Limitations on Number of Events and Hours of Operation. No more than one small outdoor music event shall be held on the property in a calendar month, with a maximum of eight events per calendar year. All small outdoor music event activity shall take place only between the hours of 11:00 a.m. and 9:00 p.m. on weekdays, and between 11:00 a.m. and 10:00 p.m. on weekends and shall last a maximum of four hours. The applicant shall provide the zoning administrator with a list of the date(s) and time(s) of the scheduled small outdoor music event(s) prior to obtaining a permit. The permit holder shall annually update the information on file with the zoning administrator regarding the event

date(s) and time(s), and the zoning administrator shall be notified of any change in the date(s) and time(s) of events at least ten days prior to the event.

4. Attendance. Small outdoor music events shall be limited to a maximum of one hundred fifty people if the lot size is less than twenty thousand square feet in size.

5. Parking. Adequate off-street parking shall be provided.

6. Street Standard. At a minimum, primary street access for the event shall be from a nonresidential collector street.

7. Traffic and Parking Management Plan. A traffic and parking management plan shall be submitted at the time the application for the use permit is filed. At a minimum, such traffic and parking management plan shall include the number of vehicles expected, a list of the streets to be used for ingress and egress, and a list of surface parking areas to be used to accommodate the event.

8. Lighting. All light and glare shall be directed on-site to ensure surrounding properties are not adversely impacted by increases in direct or indirect ambient lighting levels.

9. Event Notification. The applicant shall provide written notice of every small outdoor music event to all properties located within six hundred feet of the subject property at least ten business days prior to the date of each event. Such notice can be via first class U.S. mail or hand delivery. An event notification plan shall be submitted by the applicant prior to obtaining a permit identifying the method by which notice regarding the small outdoor music event(s) is to be provided. Such notice shall include the following:

a. The date, location, and hours of the event;

b. The name, email address, and telephone number of the person(s) responsible for the event;

c. The telephone number of the zoning administrator's office for purposes of making complaints regarding the event; and

d. A statement that noise complaints during the event shall be made to the metropolitan police department.

10. Revocation of Permit. The zoning administrator shall have the authority to revoke a small outdoor music event permit upon the violation of any of the terms and conditions of the use permit or of the provisions of this section. Prior to taking action to revoke a small outdoor music event permit, the zoning administrator shall have received a petition documenting the violation(s) signed by owners/occupants representing a majority (fifty percent plus one) of the properties within the event notification area and a copy of the matter of record report from the metropolitan police department, provided that no petition shall be required whenever the zoning administrator determines that there has been a repeat violation of this section or has grounds to believe that a repeat violation has occurred within the past twelve months. Upon revocation, applicants shall not be permitted to apply for another small outdoor music event permit for a period of one year. Revocations may be appealed to the board of zoning appeals pursuant to Section 17.40.180 of the Metropolitan Code.

11. Spacing. Only one small outdoor music event permit shall be issued per street block face. Where a block face is over five hundred feet in length, no small outdoor music event shall be permitted within five hundred feet of another property having a valid permit for small outdoor music events, measured in a direct line along the block face from property line to property line and including any public right-of-way.

12. The conditions set forth herein shall not apply to any event on public property meeting the definition of small outdoor music event, nor shall they apply to such events on property that is not zoned CS, CS-NS, CS-A, CS-A-NS, CF, CF-NS, CA, CA-NS. (Ord. BL2019-111 § 1(Exh. A, § 26), 2020; Ord. BL2015-1153 § 15, 2015; Amdt. 1 to Ord. BL2014-651 § 3, 2014; Ord. BL2014-651 § 3, 2014; Amdt. 1 with Ord. BL2002-1273 § 7, 2003; Amdt. 1 (part) with Ord. 99-1644 § 1 (part), 1999; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 4.2(J), 1997)

17.16.130 Other uses.

(Refer to zoning district land use table)

A. Cemetery.

1. Lot Size. The minimum site area shall be ten acres. Private family cemeteries and cemeteries accessory to a religious institution shall be on a one-acre lot, minimum.

2. Street Standard. For cemetery developments of twenty-five acres or greater, primary access shall be from a collector or arterial street.

3. Landscape Buffer Yard. Where the perimeter of a cemetery abuts a residential zone district or district permitting residential use, there shall be screening in the form of landscape buffer yard Standard A along common property lines.

4. The following accessory uses shall be permitted: Mausoleums, columbariums, chapels, funeral homes and other facilities for burial and ceremonial purposes.

B. On-Site Agricultural Sales.

1. Maximum Size. Any stand or activity, including any structure, shall be allowed a maximum of three hundred square feet of indoor and outdoor area to display items, except no outdoor display area limitation

shall apply to agricultural products cut or picked by customers. The maximum floor area of any structure shall be one hundred square feet.

2. Stand. Any stand and/or structure shall be single-story, temporary/seasonal, readily removable, and not permanently affixed to the ground. Further, any stand and/or structure shall be at least fifteen feet from any public right-of-way.

3. Products. Items offered for sale or without charge shall be limited to those produced on the property such as raw unprocessed fruits, vegetables, nuts, seeds, herbs, flowers, ornamental plants, or trees, as well as jams, jellies, pickles, sauces, relishes, or handicrafts.

4. Parking. Adequate off-street parking shall be provided with an all-weather surface that minimizes ruts, potholes, and pooling of water. No portion of any required parking space shall be located within the right-of-way of a public street or require backing-up onto a public street.

C. Mineral Extraction.

1. Street Standard. At a minimum, this use shall have driveway access on a nonresidential collector street as specified in the Major and Collector Street Plan.

2. Setback. No mineral extraction activity, including the transport of material extracted, shall occur within five hundred feet of any property line, within one thousand two hundred fifty feet of a residential structure, or within two thousand feet of the property line of a park or community education facility with the exception that residential structures, parks or community education facilities on the opposite side of navigable water ways shall be excluded from the setback requirement.

3. Landscape Buffer Yard. Where the site abuts a residential zone district, screening in the form of landscape buffer yard Standard D shall be applied continuously within the setback area required in subdivision 2 of this subsection placed either on the property boundary or along the perimeter of the operation, or both. This screening shall consist of six feet in height densely planted shrubs and/or trees which are of an evergreen type that provide year-round screening, or an opaque wall or barrier of six feet in height. An earthen berm may supplement this screening. All screening shall be maintained in good condition at all times. Areas of hazardous equipment and quarry pits shall be completely enclosed by fencing.

4. Performance Standards. The operation shall minimize disturbances and adverse impacts on surrounding lands using best available current technology. The operation shall comply with the performance standards of the industrial zone district regulations and measures shall be taken to control windborne materials in accordance with Section 10.56.190 of the Metropolitan Code. The application shall demonstrate the methodology necessary to ensure that the operation complies with all applicable federal, state and local laws.

D. Asphalt Plant.

1. Street Standard. At a minimum, this use shall have driveway access on a nonresidential collector street as specified in the Major and Collector Street Plan.

2. Setback. No asphalt plant activity shall occur within one thousand two hundred fifty feet of a residential structure or within two thousand feet of the property line of a park or community education facility with the exception that residential structures, parks or community education facilities on the opposite side of navigable water ways shall be excluded from the setback requirement.

3. Landscape Buffer Yard. Where the site abuts a residential zone district, screening in the form of landscape buffer yard Standard D shall be applied continuously within the setback area required in subdivision 2 of this subsection placed either on the property boundary or along the perimeter of the operation, or both. This screening shall consist of six feet in height densely planted shrubs and/or trees which are of an evergreen type that provide year-round screening, or an opaque wall or barrier of six feet in height. An earthen berm may supplement this screening. All screening shall be maintained in good condition at all times. Areas of hazardous equipment shall be completely enclosed by fencing.

4. Performance Standards. The operation shall minimize disturbances and adverse impacts on surrounding lands using best available current technology. The operation shall comply with the performance standards of the industrial zone district regulations and measures shall be taken to control windborne materials in accordance with Section 10.56.190 of the Metropolitan Code. The application shall demonstrate the methodology necessary to ensure that the operation complies with all applicable federal, state and local laws.

E. Concrete Plant.

1. Street Standard. At a minimum, this use shall have driveway access on a nonresidential collector street as specified in the Major and Collector Street Plan.

2. Setback. No concrete plant activity shall occur within one thousand feet of a residential structure or within two thousand feet of the property line of a park or community education facility with the exception that residential structures, parks or community education facilities on the opposite side of navigable water ways shall be excluded from the setback requirement.

3. Landscape Buffer Yard. Where the site abuts a residential zone district, screening in the form of landscape buffer yard Standard D shall be applied continuously

within the setback area required in subdivision 2 of this subsection placed either on the property boundary or along the perimeter of the operation, or both. This screening shall consist of six feet in height densely planted shrubs and/or trees which are of an evergreen type that provide year-round screening, or an opaque wall or barrier of six feet in height. An earthen berm may supplement this screening. All screening shall be maintained in good condition at all times. Areas of hazardous equipment shall be completely enclosed by fencing.

4. Performance Standards. The operation shall minimize disturbances and adverse impacts on surrounding lands using best available current technology. The operation shall comply with the performance standards of the industrial zone district regulations and measures shall be taken to control windborne materials in accordance with Section 10.56.190 of the Metropolitan Code. The application shall demonstrate the methodology necessary to ensure that the operation complies with all applicable federal, state and local laws. (Amdt. 1 to Ord. BL2015-14 § 3, 2015; Ord. BL2015-14 § 3, 2015; Amdt. 1 to Ord. BL2015-13 § 1, 2015; Ord. BL2015-13 § 1, 2015; Amdts. 1, 2, to Ord. BL2012-182 § 3, 2012; Ord. BL2012-182 § 3, 2012; Ord. 96-555 § 4.2(K), 1997)

Article III. Uses Permitted by Special Exception (SE)

17.16.140 Applicability.

The land use development standards in this article apply to uses permitted by special exception, referenced as "SE" in the zoning district land use table, Section 17.08.030, or as otherwise provided in this title. Special exceptions are land uses subject to review by the board of zoning appeals (see Chapter 17.40, Article VII). Religious institutions and cultural centers having a valid use and occupancy permit on the effective date of the ordinance codified in this code, which do not satisfy the land use development standards of this article, may expand under the authority of the board of zoning appeals subject to demonstrating compliance with the general provisions. Community education facilities having a valid use and occupancy permit on the effective date of the ordinance codified in this Code, and which cannot satisfy the locational or design standards of Section 17.16.040(A) may expand under the authority of the board subject to demonstrating compliance with Section 17.16.150. (Ord. BL2004-492 § 3, 2005; Ord. 96-555 § 4.3 (part), 1997)

17.16.150 General provisions.

A. Burden of Proof. A special exception permit shall not be considered an entitlement, and shall be granted by the board of zoning appeals only after the applicant has demonstrated to the satisfaction of the board that all of the required standards are met.

B. Ordinance Compliance. The proposed use shall comply with all applicable regulations, including any specific standards for the proposed use set forth in this title, unless circumstances qualify the special exception for a variance in accordance with Chapter 17.40, Article VIII. Any accessory use to a special exception must receive express authorization from the board of zoning appeals.

C. Integrity of Adjacent Areas. A special exception use permit shall be granted provided that the board finds that the use is so designed, located and proposed to be operated that the public health, safety and welfare will be protected. The board shall determine from its review that adequate public facilities are available to accommodate the proposed use, and that approval of the permit will not adversely affect other property in the area to the extent that it will impair the reasonable long-term use of those properties. The board may request a report from the metropolitan planning commission regarding long-range plans for land use development.

D. Design and Architectural Compatibility. The operational and physical characteristics of the special exception shall not adversely impact abutting properties, including those located across street frontages. Site design and architectural features which contribute to compatibility include, but are not limited to, landscaping, drainage, access and circulation, building style and height, bulk, scale, setbacks, open areas, roof slopes, building orientation, overhangs, porches, ornamental features, exterior materials and colors.

E. Natural Features. Special exception uses in residential zone districts must comply with the nonresidential tree protection regulations and other natural site features shall be preserved to the greatest extent possible so as to minimize the intrusion of nonresidential structures and parking areas.

F. Historic Preservation. Features of historical significance shall not be adversely affected by the granting of any special exception. The metropolitan historic zoning commission shall be consulted regarding those features essential to preserve the historical integrity of a building or site of historical significance.

G. Traffic Impact. The applicant shall demonstrate how the proposed use will not adversely affect the safety and convenience of vehicular and pedestrian circulation in the area. The board of zoning appeals may require a traffic impact study for any special exception land use.

H. Repealed.

I. Hazard Protection. The proposed use shall reasonably protect persons and property from erosion, flooding, fire, noise, glare or similar hazards.

J. Special Conditions. Notwithstanding a finding by the board of zoning appeals that a special exception application satisfies the minimum development standards of this article, the board may restrict the hours of operation, establish permit expiration dates, require extraordinary setbacks and impose other reasonable conditions necessary to protect the public health, safety and welfare. (Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 4.3(A), 1997)

17.16.160 Residential special exceptions.

A. Rural Bed and Breakfast Homestay.

1. A rural bed and breakfast homestay shall be any geographically definable area of one agriculturally zoned lot which contains five or more acres for the principal structure as determined by the board of zoning appeals.

2. Owner-Occupied. The owner of the property must reside permanently in the home. Where there is more than one owner of the home, or where an estate, corporation, limited partnership or similar entity is the owner, a person with controlling interest, or possessing the largest number of outstanding shares owned by any single individual or corporation, shall reside permanently in the home. If two or more persons own equal shares that represent the largest ownership, at least one of the persons shall reside permanently in the home.

3. No more than one off-street parking space shall be provided for each guest room. The board shall determine the appropriate location of these spaces and require fencing, screening and landscaping to buffer and protect surrounding residential properties from any adverse impact caused by the off-street parking of vehicles.

4. No signs shall be permitted for advertising. An accessory residential sign, not to exceed the dimensions of one square foot of area, displaying the name and/or address of the owner may be permitted.

5. The bulk regulations of the district for a residence shall apply.

6. The owner shall maintain and make available to the zoning administrator a guest register for each calendar year.

7. Meal service shall be restricted to overnight guests only; no cooking facilities shall be permitted in any guest room.

8. The metropolitan fire marshal shall approve the structure for safety.

B. Historic Home Events.

1. Lot Size. The minimum bulk standard for the zone district shall apply.

2. Location. The events shall be within a historically significant structure, as determined by the historic zoning commission.

3. Parking. Where the minimum parking space standard requires additional parking area to be constructed, such area shall comply with the perimeter parking lot landscaping according to Chapter 17.24 of this code. In urban settings, the board of zoning appeals may consider on-street parking to satisfy the minimum parking standard, provided there is a finding of sufficient available public space.

4. Signs. Signs for advertising shall not be permitted.

5. Meals. Meal service shall be restricted to patrons of the special event only, and not to the general public.

6. Owner-Occupied. The owner of the property must reside permanently in the historic home. Where there is more than one owner of the home, or where an estate, corporation, limited partnership or similar entity is the owner, a person with controlling interest, or possessing the largest number of outstanding shares owned by any single individual or corporation, shall reside permanently in the historic home. If two or more persons own equal shares that represent the largest ownership, at least one of the persons shall reside permanently in the historic home.

7. Frequency of Events. The board of zoning appeals may limit the number and frequency of events to minimize disturbance to surrounding properties.

C. Multi-family.

1. In IWD and IR Districts.

a. Accessory to the Manufacturing, Artisan use.

i. A maximum of two units per lot shall be permitted as an accessory use to Manufacturing, Artisan use.

ii. Residential uses shall be supported by the Community Plan, as determined by the planning department.

iii. No hazardous materials or uses shall be located within an unsafe distance of the proposed residential use, as evidenced by the testimony presented to the board of zoning appeals. Notices shall be sent to all property owners within three hundred feet no later than thirty days prior to the board of zoning appeals hearing date notifying them of the proposed residential use, the board of zoning appeals hearing date, and requesting information regarding hazardous materials or uses located within an unsafe distance of the proposed residential use. The zoning administrator shall make a recommendation to the board of zoning appeals as to the adequacy of the distance between the proposed residential use and any hazardous materials.

b. Adaptive Residential Development. A multi-family use shall be permitted provided it is located within an existing structure located within the urban

services district having the majority of its frontage on an arterial street or collector street as shown on the adopted Major Street Plan and where a minimum of forty percent of the existing structure's gross floor area is devoted to residential uses, subject to the conditions below. Otherwise, all other requirements and standards established by other chapters of this title, as well as any other applicable metropolitan government, state or federal regulation, shall apply to the development and use of properties shown on the final site plan. In case of conflict between the standards of this section and other chapters of this Zoning Code, the provisions of this section shall control:

i. Structure Eligibility. All structures within the IWD and IR districts shall meet the following requirements to be eligible for the multi-family use:

(A) The structure must be determined to be worthy of conservation by the metro historical commission.

(B) The structure must be a minimum of fifty years old at the time of application for the special exception.

(C) The structure must be preserved with no additions, deletions, or alterations which would be inconsistent with the historic nature of the building or significantly alter the building's exterior appearance (i.e., blocking out windows with brick or other materials).

ii. Residential Floor Area. No density or floor area ratio shall apply to those portions of a non-residential building converted to a residential use.

iii. Building Orientation. A primary building entrance shall be oriented to the arterial street, to the extent feasible. On a corner lot, entrances shall be determined by the board of zoning appeals.

iv. Parking. Parking spaces shall be required for any residential, commercial and/or retail use in accordance with Chapter 17.20. In addition, no more than one and one-half spaces shall be required per a residential dwelling unit. Tandem residential parking may be no more than two cars in depth. If parking is provided in a new deck or structure, the ground floor of the parking facility abutting a public street shall contain commercial or retail uses for seventy-five percent of the street frontage. The commercial or retail area shall have a minimum depth of twenty feet, a minimum height of fourteen feet (floor to floor) for the first floor of the garage at street level, with each storefront having between fifty-five percent and eighty-five percent glazed window area along the garage wall facing the public street.

v. Traffic Impact Study. No traffic impact study shall be required, except the board of zoning appeals may require a study for developments of one hundred dwelling units or greater.

vi. Landscaping. Notwithstanding Section 17.24.050(A), any single addition that increases the total building area by twenty-five percent or more of an existing building, in whole or in part, shall provide landscaping as required by this title. Where the number of parking spaces is increased by twenty-five percent, either through a parking lot expansion or the construction of a new parking lot, interior parking lot landscaping shall be required.

vii. Viable Industrial Uses. The board of zoning appeals shall determine that the project will not displace viable industrial uses. The multi-family use shall not displace viable industrial uses.

viii. Hazardous Materials or Uses. No hazardous materials or uses shall be located within an unsafe distance of the proposed residential use, as evidenced by the testimony presented to the board of zoning appeals. Notices shall be sent to all property owners within three hundred feet no later than thirty days prior to the board of zoning appeals hearing date notifying them of the proposed residential use, the board of zoning appeals hearing date, and requesting information regarding hazardous materials or uses located within an unsafe distance of the proposed residential use. The zoning administrator shall make a recommendation to the board of zoning appeals as to the adequacy of the distance between the proposed residential use and any hazardous materials.

ix. Alternative Standards. Where a proposed residential development cannot comply with standards of this subsection, the board of zoning appeals may approve alternative standards. The board shall determine that the applicant has demonstrated that the relief being requested will not be injurious to surrounding properties, nor violates the adopted general plan. The board shall not act on any application requesting alternative standards without first considering recommendations from the planning commission and the historic zoning commission.

2. In the IG District.

a. Accessory to the Manufacturing, Artisan use.

i. A maximum of two units per lot shall be permitted as an accessory use to Manufacturing, Artisan use.

ii. Residential uses shall be supported by the Community Plan, as determined by the planning department.

iii. No hazardous materials or uses shall be located within an unsafe distance of the proposed residential use, as evidenced by the testimony presented to the board of zoning appeals. Notices shall be sent to all property owners within three hundred feet no later than thirty days prior to the board of zoning appeals hearing date notifying them of the proposed residential use, the board of zoning appeals hearing date, and requesting information regarding hazardous materials or uses located

within an unsafe distance of the proposed residential use. The zoning administrator shall make a recommendation to the board of zoning appeals as to the adequacy of the distance between the proposed residential use and any hazardous materials. (Ord. BL2022-1508 § 4, 2023; Ord. BL2015-1121 § 8, 2015; Ord. BL2005-701 § 1, 2005; Ord. BL2001-675 § 1 (part), 2001; Ord. 99-1616 § 1 (part), 1999; Ord. 96-555 § 4.3(B), 1997)

17.16.170 Institutional special exceptions.

(Refer to zoning district land use table)

A. Correctional Facility.

1. A master development plan shall be submitted for site plan review and approved by the board of zoning appeals.

2. Campus Size. Minimum campus size shall be twenty-five acres.

3. Setback. All buildings and outdoor security areas shall be located a minimum of one hundred feet from all property lines.

4. Landscape Buffer Yard. The perimeter of a prison shall have screening in the form of landscape buffer yard Standard D along all property lines; however landscape buffer yard Standard B may be used along the street frontage.

5. Street Standard. At a minimum, major transportation uses shall have driveway access on nonresidential collector streets.

B. Cultural Center.

1. Lot Size. The minimum lot area shall be three times the minimum lot area requirement of the zone district or two acres, whichever is less.

2. Setback. Where active outdoor areas abut a residential zone district or district permitting residential use, there shall be a minimum setback of one hundred feet.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard B shall be applied along common property lines.

4. Street Standard. At a minimum, primary access shall be from a collector street which has primary access to a street designated on the major street plan.

5. In IR and IG, the following additional restrictions apply:

a. Size is limited to 20,000 square feet, maximum.

b. A mixture of uses is supported by the Community Plan, as determined by the planning department.

c. No hazardous materials or uses are located within an unsafe distance of the proposed residential use, as evidenced by the testimony presented to the board of zoning appeals.

C. Day Care Center. Day care centers shall be classified according to the ranges below. For existing facilities in residential zone districts, a special exception permit shall be required for any proposed increase which upgrades the classification.

1. Class I—Thirteen to Twenty-Five Individuals.

a. Lot Size. The minimum lot size shall be one-half acre.

b. Street Standard. Driveways shall have access on any street, except on minor local streets driveway access shall only be permitted where the lot is located at the intersection of the minor local street and an arterial or collector street.

c. Landscape Buffer Yard. Where the outdoor play area abuts any portion of a residential zone district or district permitting residential use, screening in the form of landscape buffer yard Standard A shall be provided.

2. Class II—Twenty-Six to Fifty Individuals.

a. Lot Size. The minimum lot size shall be one acre.

b. Street Standard. At a minimum, driveways shall have access on a collector street.

c. Landscape Buffer Yard. Where the day care center abuts a residential zone district or district permitting residential use, there shall be screening in the form of landscape buffer yard Standard B along common property lines.

3. Class III—Fifty-One to Seventy-Five Individuals.

a. Lot Size. The minimum lot size shall be one and one-half acre.

b. Street Standard. At a minimum, driveways shall have access on a collector street.

c. Landscape Buffer Yard. Where the day care center abuts a residential zone district or district permitting residential use, there shall be screening in the form of landscape buffer yard Standard C along common property lines.

4. Class IV—More than Seventy-Five Individuals. A Class IV day care center shall be permitted only if the site qualifies as a preferred location under subdivision (8) of this subsection and satisfies the development standards of Class III.

5. Spacing. Regardless of classification, no day care center or day care home shall locate on the same street block face or on an opposing street block face. Where a block face is over one thousand feet in length, no day care center or day care home shall locate within one thousand feet of another day care center or day care home, measured in a direct line from property line to property line and including any public right-of-way.

6. Play Area. If an outdoor play area is provided, it shall be fenced and attached to the day care structure in a manner which minimizes noise impacts on neighboring residences.

7. All requirements of the state that pertain to the use and operation of the facility shall be met.

8. Preferred Locations. The land use development standards may be waived by the board of zoning appeals if the site meets any one of the criteria below. The minimum street standard may be waived only upon a favorable recommendation of the metropolitan traffic engineer. Preferred residential locations are where:

a. The day care center will be accessory to another institutional use; or

b. The day care center will be the principal use serving as an adaptive reuse of a vacant institutional facility or nonresidential structure; or

c. The day care center lot abuts and has common street frontage with a nonresidential or multifamily zone district; or

d. The day care center is within a large multifamily housing development of two hundred or more dwelling units.

D. Day Care Home—Large.

1. The day care home shall only be permitted in an occupied residence or accessory to another institutional use.

2. Lot Size. The minimum lot area shall be the same as the principal activity; except when in the opinion of the board of zoning appeals circumstances warrant otherwise.

3. Street Standard. Day care homes may have driveway access on any street; however, no more than one day care home shall locate on a residential minor local street and not within one hundred feet of the terminus of such street.

4. Spacing. Regardless of classification, no day care center or day care home shall locate on the same street block face or on an opposing street block face. Where a block face is over one thousand feet in length, no day care center or day care home shall locate within one thousand feet of another day care center or day care home, measured in a direct line from property line to property line and including any public right-of-way.

5. Play Area. If an outdoor play area is provided, it shall be fenced and attached to the day care structure in a manner which minimizes noise impacts on neighboring residences.

6. All requirements of the state that pertain to the use and operation of the facility shall be met.

7. The board of zoning appeals may waive the above standards for multifamily housing developments of two hundred or more units if compliance would disqualify an otherwise reasonable location.

E. Religious Institution. The following standards shall be applied to a religious institution located within a residential district to ensure compatibility with nearby residential uses.

1. Pre-Existing Facilities. A religious institution having a valid use and occupancy permit on the effective date of the ordinance codified in this chapter may expand under the authority of the board of zoning appeals subject to demonstrating compliance only with the general provisions of Section 17.16.150, and the off-site parking requirements of subsection (E)(2) of this section. The standards of subsection (E)(3) of this section shall not apply to pre-existing facilities.

2. Pre-Existing Facilities—Off-Site Parking. Approval of an off-site parking lot shall be contingent upon a demonstration that the following standards have been met:

a. The appellant shall demonstrate by a parking study, reviewed by the metropolitan traffic engineer, that the minimum number of parking spaces required by Chapter 17.20, Article II cannot be developed on the same zone lot containing the place of worship;

b. The amount of off-site parking shall not exceed the actual needs of the place of worship as demonstrated by the parking study;

c. There shall be no vacant property adjacent to the place of worship on the same block face;

d. The off-site parking area shall abut a street upon which the zone lot of the place of worship abuts and at least a portion of the off-site parking area shall be opposite the zone lot containing the place of worship;

e. Vehicular access shall be restricted to a street upon which the zone lot of the place of worship abuts;

f. All off-site parking spaces shall be within two hundred feet of the zone lot boundary of the place of worship;

g. On any given block, off-site parking associated with a place of worship shall be limited to a contiguous area;

h. Pedestrian cross walks shall be provided to connect the off-site parking area and the place of worship if determined necessary by the metropolitan traffic engineer;

i. All lighting shall be shielded so that substantially all directly emitted light falls within the property. No illumination in excess of one-half foot candle shall be permitted across the boundary of any residential property or a public street or alley. The parking area shall only be illuminated when in use; and

j. When not in use by the place of worship, the parking area shall be secured by a locked barrier that precludes vehicular access. Buses or other vehicles shall not be stored in the parking areas.

3. New Facilities. New religious institution facilities, constructed after the effective date of the ordinance codified in this chapter shall be subject to the following performance standards.

a. Minimum Site Size. Land area shall be provided at the rate of .005 acre for every seat in the sanctuary/assembly area. In areas considered by the board of zoning appeals to be predominately developed, and where assembling land to satisfy this site size standard is not practical, the board of zoning appeals may waive the minimum site size requirement, based on a determination that the proposed facility can be designed and operated in a manner which will not adversely impact abutting properties or the surrounding neighborhood.

b. Street Standard. A religious institution shall provide principle vehicular access via a street that at a minimum functions, or is otherwise classified, as indicated below:

i. Up to 50 seats: Any through or temporary dead-end street; principle driveway access may be derived from a permanent dead-end street if the facility is located at the intersection with a through street;

ii. 51 to 300 seats: Any through street or a temporary dead-end street;

iii. 301 to 1,000 seats: Any collector street;

iv. More than 1,000 seats: An arterial street, or two intersecting collector streets.

The board of zoning appeals may waive the above street standards based on a recommendation from the traffic engineer that the projected volume of traffic, to be generated by the proposed facility, can be safely and efficiently accommodated by the existing local street network without adversely impacting the surrounding neighborhood.

c. Landscape Buffers. Screening and buffering in the form of a standard B landscape buffer yard shall separate all structures and parking areas from an abutting residential property.

d. Cemetery. A cemetery, including columbariums, may be permitted by the board as an accessory use to a religious institution. (Ord. BL2022-1073 § 4, 2022; Ord. BL2015-1121 § 13, 2015; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 4.3(c), 1997)

17.16.175 Commercial special exceptions.

(Refer to zoning district land use table)

A. Kennel/Stable.

1. Setback. No part of any building or structure in which animals are housed shall be closer than two hundred feet, and no kennel run shall be located within one hundred feet, from any existing residence, other than one owned or occupied by an owner or operator of the kennel or stable. In the event more than ten horses are boarded on five acres or more, the building setback shall increase to two hundred feet from the property line.

2. Building Temperature. Enclosures must be provided which shall allow adequate protection against weather extremes. Floors of buildings, runs and walls shall be of an impervious material to permit proper cleaning and disinfecting.

3. Cages. For a kennel, each animal shall have sufficient space to stand up, lie down and turn around without touching the sides or top of cages. Cages are to be of material and construction that permits cleaning and sanitizing. Cage floors of concrete, unless radiantly heated, shall have a resting board or some type of bedding.

4. Runs. For a kennel, each run must have at least a six-foot high fence completely surrounding it. Fences must be maintained in escape-proof condition. Runs shall provide an adequate exercise area and protection from the weather. All animal quarters and runs are to be kept clean, dry and in a sanitary condition.

5. Stalls. Each horse shall have sufficient space to stand up, lie down and turn around without touching the sides of the stall. Stalls are to be of material and construction that permits cleaning and sanitizing.

6. Riding Ring. For a horse, no riding ring, including jumps and corrals, shall be located closer than fifty feet to any property line.

7. Trail Rides. No horse shall be ridden or walked along public rights-of-way for any length of time or duration.

8. Gates and Locks. All gates for entrance/exit to the stalls, riding rings, and other training area must be kept locked when not in use. All horses connected with the riding stable shall be enclosed by appropriate fencing so they shall not be permitted to run at large.

9. Watering of Animals. All animals shall have fresh water available at all times. Water vessels shall be mounted or secured in a manner that prevents tipping and shall be of the removable type.

10. On-Site Waste Collection. All on-site waste shall be housed either within the kennel building or an accessory structure, and all waste shall be disposed of in a sanitary fashion no less frequently than one time per week. The drainage of all liquid by-products from the kennel shall be discharged into a permitted sanitary sewer line or septic tank and shall not be disposed of by way of storm sewers, creeks, streams or rivers. (Amdt. 1 with Ord. 98-1268 § 1 (part), 1998)

17.16.180 Communication special exceptions.

(Refer to zoning district land use table)

(Ord. BL2016-415 § 4, 2016; Ord. BL2009-586 § 1(Exh. A, §§ 33, 34), 2010; Ord. BL2003-1304 §§ 5, 6, 2003; Ord. BL99-117 § 1 (part), 2000; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 4.3(D), 1997)

17.16.185 Industrial special exceptions.

A. Hazardous Operation.

1. Setback. All buildings used for handling, processing and/or storage of hazardous material shall be located a minimum of one hundred feet from all property lines and one thousand feet from any residential zone district.

2. Street Standard. At a minimum, hazardous operation uses shall have driveway access on nonresidential collector streets. A traffic impact study shall demonstrate that the truck traffic generated will use only streets that function at, or better than, a level of service (LOS) D.

3. Landscape Buffer Yard. Where the perimeter of a hazardous operation abuts a nonindustrial zone district, there shall be screening in the form of landscape buffer yard Standard D along common property lines.

4. The applicant shall demonstrate the capability to comply with all applicable federal, state and local regulations. In particular, the facility shall comply with the Explosive Materials Code (NFPA 495; Metropolitan Code of Laws, Chapter 10.64)

5. The permitted storage capacity of a hazardous operation shall be determined by the board of zoning appeals. (Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 4.3 (I), 1997)

17.16.190 Transportation special exceptions.

(Refer to zoning district land use table)

A. Airport.

1. Lot Size. The minimum lot area shall be one hundred acres.

2. Setback. Where transportation facilities, excluding passenger car parking lots, abut a residential zone district or district permitting residential use, there shall be a minimum setback of five hundred feet.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied along common property lines.

4. Street Standard. At a minimum, airport land uses shall have driveway access on nonresidential collector streets. A traffic impact study shall demonstrate that the traffic generated will use only streets that function at, or better than, a level of service (LOS) D.

B. Bus Station/Landport.

1. Setback. Where transportation facilities, excluding passenger car parking lots, abut a residential zone district or district permitting residential use, there shall be a minimum setback of one hundred feet.

2. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied along common property lines.

3. Street Standard. At a minimum, bus station/landport land uses shall have driveway access on nonresidential collector streets.

C. Bus Transfer Station.

1. Setback. All buildings and passenger loading areas, excluding passenger car parking lots, shall be located a minimum of fifty feet from any residential zone district or district permitting residential use.

2. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard B shall be applied along common property lines.

3. Street Standard. At a minimum, bus transfer station land uses shall have driveway access on any street which intersects at least a collector street.

D. Commuter Rail.

1. Setback. Where transportation facilities, excluding passenger car parking lots, abut a residential zone district or district permitting residential use, there shall be a minimum setback of five hundred feet.

2. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard C shall be applied along common property lines.

3. Street Standard. At a minimum, lightrail station land uses shall have driveway access on nonresidential collector streets. A traffic impact study shall demonstrate that the traffic generated will use only streets that function at, or better than, a level of service (LOS) D.

E. Helistop.

1. Location. To the greatest extent feasible, a helistop pad should be located adjacent to the flight corridor established by the FAA.

2. Accessory to a Hospital. In the OG, OG-NS, MUG, MUG-NS, MUG-A, MUG-A-NS, CS, CS-NS, CS-A, and CS-A-NS districts, a helistop shall be permitted only as an accessory use to a hospital.

3. Separation from Residential Properties. No helistop pad shall be located within five hundred feet of a residential property line.

4. Debris Control. A helistop facility shall be fenced to trap on-site debris. If an unpaved area is utilized as a helistop pad, the ground surface shall be wetted to minimize airborne dust generated during landings and take-offs.

5. A helistop shall have no adverse impact on the operation of sensitive equipment located on neighboring properties, including a recording studio and a live music venue.

6. Refueling facilities may be provided at a helistop located within the CF, CF-NS, IWD, IR and IG districts when operated by the Metropolitan Nashville Airport Authority.

F. Park and Ride Lot.

1. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard B shall be applied along common property lines.

2. Street Standard. At a minimum, the park and ride lot shall have driveway access on any street which intersects at least a collector street.

G. Railroad Station.

1. Setback. Where transportation facilities, excluding passenger car parking lots, abut a residential zone district or district permitting residential use, there shall be a minimum setback of five hundred feet.

2. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied along common property lines.

3. Street Standard. At a minimum, railroad station land uses shall have driveway access on nonresidential collector streets. (Ord. BL2019-111 § 1(Exh. A, § 27), 2020; Ord. BL2015-1153 § 15, 2015; Ord. BL2011-898 § 11, 2011; Ord. 96-555 § 4.3(E), 1997)

17.16.200 Utility special exceptions.

(Refer to zoning district land use table)

A. Safety Services.

1. Lot Size. The minimum lot area shall be three times the minimum lot area requirement of the zone district or two acres, whichever is less.

2. Setback. Facilities for the provision of safety services, excluding passenger car parking lots, shall be located fifty feet from any residential property line.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard C shall be applied along common property lines.

4. Street Standard. At a minimum, these uses shall have driveway access on a collector street which intersects at least a collector street.

B. Wastewater Treatment.

1. Lot Size. The minimum lot area shall be ten acres.

2. Setback. The facility, excluding passenger car parking lots, shall not be located within one thousand feet of any residential property line.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied along common property lines.

4. Street Standard. At a minimum, wastewater treatment plant land uses shall have driveway access on nonresidential collector streets.

C. Water Treatment Plant.

1. Lot Size. The minimum lot area shall be ten acres.

2. Setback. The facility, excluding passenger car parking lots, shall not be located within one hundred feet of any residential property line.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied along common property lines.

4. Street Standard. At a minimum, water treatment plant land uses shall have driveway access on nonresidential collector streets. (Ord. 96-555 § 4.3(F), 1997)

17.16.210 Waste management special exceptions.

(Refer to zoning district land use table)

The applicant shall submit to the board of zoning appeals a detailed description of the management procedures of the facility.

A. Waste Transfer.

1. Lot Size. The minimum site area shall be ten acres.

2. Street Standard. Driveway access can be from any local street, provided that street is not bounded by any residential zoning district from the driveway access point to the street's intersection with a collector street or a street designated on the major street plan. A traffic impact study shall demonstrate that traffic generated to/from the site will only use streets where the existing level of service (LOS) is "D," and it is forecasted to remain at a LOS D or better with the proposed waste transfer traffic.

3. Setback. All buildings, structures, storage containers and areas, and vehicle loading/unloading areas shall be located a minimum of one hundred fifty feet away from any residential zoning district boundary or residential structure.

4. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied. In addition, the entire facility shall be enclosed by a chain-link-type fence at least eight feet in height. The fence shall be patrolled each day to remove all windblown debris captured by the fence.

5. All loading, unloading, compacting, sorting, processing or storage shall take place within a completely enclosed building. (Ord. BL2017-799 § 5, 2017; Ord. BL2015-1153 § 16, 2015; Ord. Bl2014-772 § 2, 2014; Amdt. 1 to Ord. BL2010-634; Ord. BL2010-634 § 2, 2010; Amdt. 1 with Ord. BL2002-1273 §§ 3, 4, 2003; Amdt. 1, 2, with Ord. BL2002-1171 §§ 3, 4, 2002; Amdt. 1 (part) with Ord. BL99-86 § 2, 2000; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 4.3(G), 1997)

17.16.220 Recreation and entertainment special exceptions.

(Refer to zoning district land use table)

A. Camp.

1. Lot Size. The minimum lot area shall be ten acres plus one acre/fifty campers.

2. Setback. All structures and activity areas, including outdoor amphitheaters, ballfields, tennis courts, swimming pools, parking or unloading areas, shall be

located a minimum of one hundred fifty feet from any residential zoning district boundary or any residential structure.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard standard D shall be applied along common property lines.

4. Traffic Management Study. The traffic engineer may require a traffic management study to determine what, if any, improvements may be necessary to accommodate projected traffic to and from the camp facility.

5. Parking. Adequate off-street parking and loading/unloading areas shall be provided on-site, including all accessory uses.

6. Lighting. All light and glare shall be directed on-site to ensure surrounding properties are not adversely impacted by increases in direct or indirect ambient lighting levels. Lighting of outdoor amphitheater, ballfields or other outdoor recreation/activity areas shall be prohibited after ten p.m. any day of the week.

7. Outdoor Loudspeakers. There shall be no outdoor loudspeakers or public address systems, except as may be needed for emergency purposes.

8. Refuse Storage and Disposal. Trash areas shall be provided and screened on at least three sides from public view by an opaque impact-resistant fence of sufficient height to screen the dumpster(s).

9. Signs. One on-premise ground or pole mounted sign measuring no larger than ten square feet shall be permitted at each camp entrance setback fifteen feet from the street right-of-way. The maximum height of a ground mounted sign shall be three and one-half feet tall and a pole mounted sign shall be fifteen feet. All signs shall be either spotlighted or externally lit. On-premise temporary signs shall not be permitted.

10. Uses. All principal and accessory uses shall be identified on the special exception permit and labeled on the site plan along with the proposed square footage of each use, including the number of overnight accommodation units. Any changes to a principal or accessory use, including modifications or additions, shall be approved as an amendment to the special exception permit by the board of zoning appeals, as provided in Article VII of Chapter 17.40 of this title.

B. Commercial Amusement (inside).

1. Size is limited to twenty thousand square feet, maximum.

2. A mixture of uses is supported by the Community Plan, as determined by the planning department.

3. No hazardous materials or uses are located within an unsafe distance of the proposed residential use, as evidenced by the testimony presented to the board of zoning appeals.

C. Commercial Amusement (outside).

1. Applicable to all zoning districts where Commercial Amusement (outside) is a SE use:

a. Lighting. All light and glare shall be directed on-site to ensure surrounding properties are not adversely impacted by increases in direct or indirect ambient lighting levels.

b. The board of zoning appeals may stipulate, based on the zoning pattern and nature of the land uses in the immediate area, whether a maximum of sixty or seventy decibels noise level on the A-weighted scale shall be permitted to occur at the site boundary.

2. Applicable only to IWD and IR zoning districts:

a. Buildings. Any new structure constructed on the property shall be no greater in size than one thousand, five hundred square feet.

b. Setback. Where any building or outdoor storage area, excluding passenger car parking lots, abuts a residential zone district or district permitting residential use, there shall be a minimum setback of one hundred feet from the property line.

c. Landscape Buffer. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard standard A shall be applied along common property lines.

d. Street Standard. At a minimum, driveway access shall be from a collector street.

3. Applicable only to the North, South, and West Use Areas of the DTC zoning district:

a. Hours of Operation. All events including sound amplification shall only take place between the hours of 9:00 a.m. and 11:00 p.m. The board of zoning appeals may further restrict the hours and days of operation.

b. Traffic Management Study. A traffic management study shall be required.

c. Lot Area. A minimum lot size of one acre shall be required for a Commercial Amusement (outside) use.

d. Separation from Residential Properties. Prior to conducting a special exception hearing before the board of zoning appeals, the planning department shall determine if the subject lot proposed for the Commercial Amusement (outside) use is within five hundred feet of the property line of a lot with a residential use (including multifamily). If it is determined that the subject lot is within five hundred feet of a residential use, the special exception shall not be approved.

D. Country Club.

1. Lot Size. The minimum lot area shall be fifty acres.

2. Setback. Where any building or outdoor storage area, excluding passenger car parking lots, abuts a residential zone district or district permitting residential use, there shall be a minimum setback of one hundred feet from the property line.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard A shall be applied along common property lines.

4. Street Standard. At a minimum, driveway access shall be from a collector street.

E. Driving Range.

1. Street Standard. At a minimum, driveway access shall be from a collector street.

2. Location. In the AG and AR2a districts, a driving range shall only be permitted in a floodplain, as designated by the Army Corps of Engineers. In any residential district (RS80 thru RM60), a driving range shall only be permitted in conjunction with a golf course. The driving range shall be located so that it is one hundred feet away from any residential zoning district boundary or the property line of any property containing a residential use.

3. Lighting. All light and glare shall be directed on-site to ensure surrounding properties are not adversely impacted by increases in direct or indirect ambient lighting levels.

4. Retail/Restaurant. A snack-bar and pro-shop shall be permitted on the same parcel as the principal use provided it is contiguous to the area where people stand to drive golf balls. The combined area of the snack-bar and pro-shop shall not exceed one thousand five hundred square feet. The snack-bar shall not provide any sit-down food service or alcoholic beverages.

5. Fencing. Adequate fencing shall be provided to ensure golf balls do not fly into abutting or adjacent properties and streets.

F. Golf Course.

1. Lot Size. The minimum lot area shall be twenty-five acres.

2. Setback. Where any building or outdoor storage area, excluding passenger car parking lots, abuts a residential zone district or district permitting residential use, there shall be a minimum setback of one hundred feet from the property line.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard A shall be applied along common property lines.

4. Street Standard. At a minimum, driveway access shall be from a collector street.

5. Traffic Management Study. A traffic management study shall be required for professional tournaments.

G. Racetrack. In the AG and AR2a districts only, motor racing facilities shall be limited to those providing seating for over twenty-five thousand spectators.

1. Lot Size. The minimum lot area shall be twenty-five acres.

2. Setback. Where the track and related facilities, excluding passenger car parking lot, abut a residential zone district or district permitting residential use, there shall be a minimum setback of five hundred feet.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied along common property lines.

4. Street Standard. At a minimum, primary access shall be from a nonresidential collector street which has primary access to a street designated on the major street plan.

5. Traffic Management Study. A traffic management study shall be required.

H. Recreation Center.

1. Setback. Where any building or outdoor storage area, excluding passenger car parking lots, abuts a residential zone district or district permitting residential use, there shall be a minimum setback of one hundred feet from the property line.

2. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard standard A shall be applied along common property lines.

3. Street Standard. At a minimum, driveway access shall be from a collector street.

I. Rehearsal Hall.

1. Size is limited to twenty thousand square feet, maximum.

2. A mixture of uses is supported by the Community Plan, as determined by the planning department.

3. No hazardous materials or uses are located within an unsafe distance of the proposed residential use, as evidenced by the testimony presented to the board of zoning appeals.

J. Temporary Festival.

1. Setback. Amusement rides and other active, open-air activities shall be located one hundred feet from any residential zone district.

2. The board of zoning appeals shall stipulate, based on the zoning pattern and nature of land uses in the immediate area, whether a maximum of sixty or seventy decibels noise level on the A-weighted scale shall be permitted to occur at the site boundary.

3. The activity shall have a duration of no more than ten days in a month, and limited to four events per year. The board of zoning appeals may further restrict the hours and days of operation.

K. Theatre.

1. Size is limited to twenty thousand square feet, maximum.

2. A mixture of uses is supported by the Community Plan, as determined by the planning department.

3. No hazardous materials or uses are located within an unsafe distance of the proposed residential use, as evidenced by the testimony presented to the board of zoning appeals.

L. Zoo.

1. Lot Size. The minimum lot area shall be twenty-five acres.

2. Setback. Where any building or outdoor storage area and/or display, excluding passenger car parking lots, abuts a residential zone district or district permitting residential use, there shall be a minimum setback of one hundred feet from the property line.

3. Landscape Buffer Yard. Along all residential zone districts and districts permitting residential use, screening in the form of landscape buffer yard Standard C shall be applied along common property lines.

4. Street Standard. At a minimum, driveway access shall be from a collector street.

5. Traffic Impact Study. A traffic impact study shall be required. (Ord. BL2022-1216 § 3, 2022; Ord. BL2015-1121 §§ 10, 16, 18, 2015; Ord. BL2002-1226 § 1 (part), 2003; Amdt. 1 to Ord. 99-1644 § 1 (part), 1999; Ord. 98-1268 § 1 (part), 1998; Amended during 2-98 supplement; Ord. 96-555 § 4.3(H), 1997)

17.16.230 Other special exception uses.

(Refer to zoning district land use table)

A. Commercial Community Garden.

1. Landscape Buffer Yard. The board of zoning appeals shall have the authority to require landscape buffering for properties abutting a residentially zoned property;

2. Lighting. All lighting shall be shielded so that substantially all directly emitted light falls within the property. No illumination in excess of one-half foot candle shall be permitted across the boundary of any residential property or a public street or alley; and

3. On-Site Storage and Use of Compost and Organic Matter. All compost and/or organic matter on the site:

a. Shall not cover more than ten percent (10%) of the total area of the property;

b. Compost piles abutting adjacent properties must not be visible from adjacent property (shielded from view by shrubbery or an enclosure).

c. Shall be managed to prevent the harborage of rodents and pests.

d. Shall be maintained to prevent odors.

e. Shall be located to prevent leachate (the water that has come in contact with the compost) from flowing onto adjacent property or into natural or human-made storm channels.

4. Drainage. The site shall be designed and maintained to prevent water from irrigation and/or other activities and/or fertilizer from draining onto adjacent property.

5. Refuse Storage and Disposal. Trash areas shall be provided and screened on at least three (3) sides from public view by an opaque impact-resistant fence of sufficient height to screen the dumpster(s).

6. Parking. Where the minimum parking space standard requires additional parking area to be constructed, such area shall comply with the perimeter parking lot landscaping according to Chapter 17.24 of this Code. In urban settings, the board of zoning appeals may consider on-street parking to satisfy the minimum parking standard, provided there is a finding of sufficient available public space.

7. The board of zoning appeals shall have the authority to consider the potential impacts on riparian areas of urban streams in deciding whether a particular location is appropriate for a commercial community garden.

B. Mineral Extraction. The board of zoning appeals may approve accessory uses to the mineral extraction activity including, but not limited to, rock crushing, mineral screening, and any combination of uses necessary to extract and process minerals. Such accessory activities shall be located within the perimeter of operation. Concrete batching, and asphalt/cement mixing plants may be accessory uses in the IR zone district only.

1. Lot Size. The minimum lot area for mineral extraction shall be one hundred acres.

2. Street Standard. At a minimum, these uses shall have driveway access on nonresidential collector streets. A traffic impact study shall demonstrate that the truck traffic generated will use only streets that function at, or better than, a level of service (LOS) D.

3. Location. In the AG and AR2a zone districts, the location of these activities shall not be permitted within the urban services district.

4. Separation. In the AG and AR2a zone districts, a one-mile separation shall be required between any two mineral extraction sites, as measured from property lines.

5. Setback. The perimeter of operation shall comply with the following setback standards:

Zoning District	From any Property Line	From any Off-Site Residential Structure
IR	250 feet	500 feet
AG, AR2a	500 feet	1000 feet

6. Residential Encroachment. The issuance of a building permit for construction or use of any residential structure, after the zoning administrator has ruled that the proposed perimeter of operation complies with the above minimum setbacks from a residential structure, and where placement or conversion of the structure for residential purpose will be within the minimum setback of five hundred feet or one thousand feet, such construction or use shall not make the mineral extraction activity nonconforming.

7. Landscape Buffer Yard. The required setback area established in subdivision (5) of this subsection shall be an undisturbed open area, unobstructed from the ground to the sky, where natural vegetation is preserved and enhanced with other natural and artificial screening materials to buffer the use of the property. This area may be used for agricultural purposes.

a. Where the site abuts a residential zone district or district permitting residential use, screening in the form of landscape buffer yard Standard D shall be applied continuously within the setback area where the best opportunity exists to screen the operation, placed either on the property boundary, along the perimeter of operation, or both. This screening shall consist of six feet in height densely planted shrubs and/or trees which are of an evergreen type that provide year-round screening, or an opaque wall or barrier of six feet in height. An earthen berm may supplement this screening. All screening shall be maintained in good condition at all times. Areas of hazardous equipment and quarry pits shall be completely enclosed by fencing.

b. To the greatest extent possible in the AG and AR2a zone districts, the perimeter of operation shall be screened from the view of motorists and abutting property owners by earthen berms, walls, vegetation or other methods. The entrance to the site shall be designed to block the view of passing motorists, by using angled, off-setting walls, berms or permanent opaque fencing.

8. Performance Standards. The operation shall minimize disturbances and adverse impacts on surrounding lands using best available current technology. The operation shall comply with the performance standards of the industrial zone district regulations and measures shall be taken to control windborne materials in accordance with Section 10.56.190 of the Metropolitan Code of Laws. The application shall demonstrate the

methodology necessary to ensure that the operation complies with all applicable federal, state and local laws. Specifically, the following regulations or any subsequent amendments thereto shall apply:

a. Federal new source performance standards (NSPS, 40 CFR Part 60 Sub-part OOO); air pollution control (Tennessee Code Annotated 68-201): Permits required from metropolitan health department (Metropolitan Code of Laws, Chapter 10.56);

b. National pollutant discharge elimination system (NPDES, 33 US 1251): Permit required from Tennessee department of environment and conservation (Tennessee Code Annotated 69-3-108);

c. Quarrying and mining operations (Metropolitan Code of Laws, Chapter 10.52);

d. Explosive materials code (NFPA 495; Metropolitan Code of Laws, Chapter 10.64);

e. Tennessee blasting standards (Tennessee Code Annotated 68-105).

9. Pre-Blast Survey. A pre-blast survey of property within one-half mile of the perimeter of operation shall be conducted and made part of the application. The proposed blasting schedule shall also be submitted. For any property not included in the pre-blast survey, the applicant shall provide sufficient information to demonstrate that the property owner withheld authorization to conduct the survey.

10. Blasting. In addition to mitigating potential damage to surrounding properties from blasting, the operator shall comply with the following:

a. Prior to commencement of operations, the proposed blasting schedule shall be conveyed to every resident living within one-half mile of the proposed blasting site by certified mail and such proof of notification shall be made available for public inspection. Any subsequent change in blasting schedule shall be preceded by a similar notification to the residents and to the zoning administrator;

b. A record of blasting shall be maintained for three years and made available for public inspection. The log shall detail the location of blasts, seismograph readings for each blast, pattern and depth of the drill holes, the amount of explosives used per hole, and the order and length of delay in the blasts;

c. The minimum standards for ground vibration and, airblast overpressure set forth below shall not be exceeded at any time.

i. Ground vibration: .50 inches per second peak particle velocity for frequencies below forty Hertz and 2.0 inches per second peak particle velocity for frequencies greater than 40 hz; the charge weight delay shall be adjusted accordingly to insure compliance with this standard.

ii. Airblast overpressure: 129 peak dBL (linear)-0. 1 hz high-pass system; 128 peak dBL (linear)-2.0 hz high-pass system; 124 peak dBL (linear)-5 or 6 hz high-pass system.

d. All blasts shall be monitored by an independent geotechnical expert in the field of seismology using best available current technology in measurement instrumentation. Such devices shall be placed one each at all four points of the compass surrounding the excavation area. Such monitoring devices shall produce a hard copy record in graph form or equivalent suitable for filing with the department of codes administration as a permanent record. Blasting shall only occur between seven a.m. and seven p.m. Monday through Saturday and may be further restricted to minimize disturbance to surrounding properties.

11. Reclamation/Closure Plan. The application shall include plans for the final contours of the site after the operation is terminated so as to render the land suitable for a use consistent with the general plan for Nashville/Davidson County, specifying the fill material which shall be nontoxic, nonflammable and noncombustible. Water may serve as fill material. The applicant shall execute a performance bond in an amount necessary for restoration of the property to assure the stability, drainage and configuration necessary for the intended reuse of the site, including the removal of all structures and machinery.

C. Pond/Lake.

1. Lot Area. The pond/lake shall not occupy more than ten percent of the total lot area.

2. Site Plan. Plans for the proposed pond/lake shall be submitted to the stormwater division of the department of water and sewerage services, the zoning administrator, the health department, and the board of zoning appeals. The plans shall consist, at a minimum, of a plan view and a typical cross section of the proposed pond/lake. The plan view shall include the configuration of the pond/lake with the dimensions and maximum depth areas, distances to property lines, drainage easements, structures, outlet structures, septic systems, proposed overflow spillway, and proposed landscaping. The typical cross section shall identify the bank and bottom slopes, maximum depth, outlet and/or overflow structures with elevations and normal water level evaluation. A description of the soil type(s) and hydraulic conditions at the site shall be provided to determine the feasibility of the pond/lake.

3. Construction and Maintenance. Construction and maintenance of the pond/lake shall be in accordance with all applicable state and local regulations.

4. Notification. Prior to conducting a special exception hearing before the board of zoning appeals, and immediately after receiving an application for a pond/lake special exception, the zoning administrator or, if applicable, the executive director of the planning department shall notify the district councilmember that an application has been submitted.

5. The following types of ponds/lakes shall be exempt from the provisions of this section:

a. Landscape or ornamental ponds less that one thousand square feet in area and less than three feet in depth;

b. Ponds/lakes used for irrigation or water treatment of a golf course;

c. Farm ponds constructed on a working farm;

d. Detention and/or water quality ponds required by the stormwater division of the department of water and sewerage services;

e. Wildlife ponds and wetlands required by or constructed with the assistance of the Tennessee Department of Environment and Conservation; and

f. Ponds/lakes on property owned by the metropolitan government. (Ord. BL2009-479 § 3, 2009; Amdt. 1 with Ord. BL2004-220 § 1 (part), 2004; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; § 1 (10) of Amdt. 1 with Ord. 96-555 § 4.3(I), 1997)

Article IV. Uses Permitted as Accessory (A)

17.16.240 Applicability.

The land use development standards in this article apply to uses which are accessory to a principal use on the same property, referenced as "A" in the zoning district land use table, Section 17.08.030. While not all accessory uses have land use development standards, those listed in this article have unique characteristics that warrant minimum restrictions on use. (Ord. 96-555 § 4.4 (part), 1997)

17.16.250 Residential accessory uses.

(Refer to zoning district land use table)

A. Accessory Apartment. A self-sufficient housekeeping unit shall be considered to be accessory to a single-family residence subject to the following:

1. The single-family residence is owner-occupied and meets all regulations of the district;

2. There is free and clear access between the housekeeping units without going outdoors;

3. Only one meter per utility may be installed to service both units;

4. A maximum of twenty-five percent of the gross floor area, excluding garage and utility space, may be used for the accessory apartment;

5. No entrance, which would be visible from the street, may be added solely for the purpose of providing direct outside access to the street;

6. The second unit must be occupied by a family member defined as grandmother, grandfather, mother, father, sister, brother, son, daughter, mother-in-law, father-in-law, sister-in-law, brother-in-law, son-in-law, daughter-in-law, aunt or uncle;

7. That the covenants provided herein may be enforced by the department of codes administration of the metropolitan government; and

8. An instrument shall be recorded with the register's office covenanting that the apartment is being established as an accessory use and may only be used under the conditions listed above.

B. Domesticated hens.

1. Type and number. Except upon property zoned for agricultural use or for properties in the R/R-A and RS/RS-A districts of five acres or more in size, a parcel of land shall contain the maximum number of domesticated hens identified below. Only hens are allowed; roosters are expressly prohibited. There is no restriction on domestic hen breeds.

Max. # Poultry	Parcel Area (sq. ft.)	Acreage
2	0 to 5,009	0.0 to 0.11
4	5,010 to 10,236	0.12 to 0.23
6	10,237 or more	0.24 or more

2. Location. All domesticated hens shall be kept in the side and/or rear yards of a residential property subject to the setback standards contained in this subsection. No domesticated hens shall be kept in the front yard. If domesticated hens are to be kept in the side yard, neither the hens nor the covered henhouse required by Section 8.12.020 of the Metropolitan Code shall be visible from any public right-of-way. Rather, the hens and henhouse shall be entirely screened from view of the public right-of-way using opaque fencing and/or landscaping.

3. Setbacks. An enclosure shall be located twenty-five feet away from any residential structure (other than the permit holder's residence) located in a residential zone district and ten feet from any property line.

4. Permit required. A valid permit issued by the department of health pursuant to Section 8.12.020 of the Metropolitan Code shall be obtained and maintained at all times.

C. Garage Sale.

1. Garage sale must be held or conducted in or upon real property, which the person or persons holding or conducting the same occupy as his or her residence(s).

2. Personal property belonging to someone else, may be sold provided homeowner or occupant receives no fee or a percentage of the proceeds as compensation for selling the items or for the use of residence.

3. Within any calendar year, a maximum of two garage sale events shall occur per residence. An event is defined as a garage sale that may occur for one day, two days and at most three days per an event.

4. A consignment sale shall be prohibited, or any other offer for sale in connection with which any owner or occupant of real property undertakes to sell personal property, as an agent of another.

5. An auction of a decedent's personal estate and/or real property conducted by a licensed auctioneer shall not be counted as a garage sale event nor be considered a consignment sale.

D. Home Occupation. A home occupation shall be considered an accessory use to a residence subject to the following:

1. Location

a. A home occupation must be conducted entirely within the dwelling unit or accessory building.

b. The home occupation shall not occupy more than twenty percent of the total floor area of the principal structure and shall not occupy more than one thousand square feet of total floor area within the principal structure and area of any legally permitted accessory buildings.

2. Employees and Vehicles

a. No more than one part-time or full-time employee not living within the dwelling may work at the home occupation location.

b. No more than five employees may reside within the dwelling at a home occupation location.

c. Parking a commercial vehicle on the premises or on a street adjacent to residentially zoned property is prohibited. Vehicles associated with the home occupation shall be limited to one passenger vehicle such as a motorcycle, automobile, pick-up truck, sport utility vehicle, van or similar, with a maximum axle load capacity of one and one-half tons.

d. No truck deliveries or pick-ups, except by public or private parcel services, are permitted.

3. Customer Visits

a. Customer visits must occur by scheduled appointment and only between the hours of 8:00 a.m. and 7:00 p.m., Monday through Saturday.

b. Customer visits shall be limited to no more than three visits per hour and a maximum of six total visits per day.

c. The permit holder shall maintain and make available to the codes department a log or register of customer appointments for each calendar year.

4. Outward Appearance

a. Signs, as defined in Section 17.32.030.B, exterior or interior displays of goods visible from the outside, or any exhibit that would indicate the dwelling unit or accessory building is being used for any purpose other than a residence are prohibited.

b. The residential character of the lot and dwelling must be maintained. A home occupation that requires a structural alteration of the dwelling to comply with a nonresidential construction code is prohibited. This prohibition does not apply to modifications to comply with accessibility requirements.

c. A home occupation may not produce noise, vibration, smoke, dust or other particulate matter, odorous matter, heat, glare, humidity, fumes, electrical interference, waste run-off, or other objectionable effects outside the dwelling unit or garage.

5. Activities

a. The storage of materials or goods shall be permitted in connection with a home occupation provided such storage complies with the following standards.

i. All materials or goods shall be stored completely within the space designated for home occupation activities.

ii. Only those materials or goods that are utilized or produced in connection with the home occupation may be stored within the dwelling unit or accessory building.

iii. All materials or goods shall be stored completely within the dwelling unit or accessory building.

iv. All flammable or combustible compounds, products or materials shall be maintained and utilized in compliance with Fire Code NFPA-30.

b. The following are permitted as home occupations that are allowed customer visits under subsection D.3:

i. Personal instruction, defined for the purposes of this section as services for training individuals or groups in academics, arts, fitness, personal defense, crafts, or other subjects of a similar nature;

ii. General office, defined for the purposes of this section as provision of executive, management, administrative, or professional services, but not involving medical services;

iii. Personal care services, defined for the purposes of this section as spa services and beauty and barber care. Personal care services do not extend to the care of or services for animals;

iv. Multimedia production, defined for the purposes of this section as staging and recording of video or audio productions that occur indoors and do not require sound to leave the premises; and

v. Artisan manufacturing, defined for the purposes of this section as the shared or individual use of hand tools, mechanical tools, and electronic tools for the manufacture of finished products or parts as well as the incidental storage, sales, and distribution of such products within the limitations of this section.

c. The following are not permitted as home occupations regardless of whether customer visits are allowed:

i. The manufacture or repair of automobiles and other transportation equipment.

ii. The repair of equipment that takes place outdoors.

iii. The outdoor storage of construction, scrap, or salvage materials.

iv. Animal grooming activities.

6. Permit Requirements

a. Home occupations that meet both of the following conditions are not required to acquire a permit for activity under this section:

i. The home occupation does not serve customers on the property; and

ii. The home occupation does not employ anyone who does not live within the dwelling.

b. Prior to issuance of a permit, the applicant shall provide the codes department with an affidavit verifying:

i. that the applicant has confirmed that operating the proposed home occupation would not violate any home owners association agreement or bylaws, condominium agreement, covenants, codes and restrictions, lease or any other agreement governing and limiting the use of the property proposed for the home occupation;

ii. that the property is the applicant's primary residence. Two documents indicating proof of primary residence shall be provided. Each document must be current and show the owner's name and address matching that of the property to be utilized for a home occupation. Acceptable documentation includes: (a) Tennessee Driver's license; (b) other valid State of Tennessee identification card; (c) Davidson County voter registration card; (d) current employer verification of residential address or a letter from the employer on company letterhead with original signature. (If the employer does not have letterhead, the signature of the employer must be notarized.); (e) current automobile, life or health insurance policy. (Wallet Cards not accepted); (f) paycheck/check stub, (g) work ID or badge, (h) Internal Revenue Service tax reporting W-2 form; or (i) a bank statement; and

iii. if the applicant is not the property owner, that the property owner is aware of the application and does not object to pursuit of the home occupation permit.

Further, the applicant shall provide proof of written notification to the owner of each adjacent property prior to filing the application. For each such adjacent property, proof of written notification shall be: (a) a signature of an owner; (b) a signed receipt of U.S. registered or certified mail addressed to an owner; or (c) notice from the U.S. Postal Service that registered or certified mail to an owner was refused or not timely accepted.

c. In single-family and two-family zoning districts, no more than one home occupation permit may be issued per lot.

d. The owner of the property: (1) must be a natural person or persons or trust; (2) may not be a limited liability entity, including without limitation a corporation or limited liability company; and (3) may not be an unincorporated entity, including without limitation a partnership, or joint venture.

e. The permit applicant must be the owner of the property, a relative of the owner of the property, or, if a renter, must have at least a one-year lease for the property. The applicant shall verify by affidavit that they comply with this subsection.

f. Only one permit may be issued per property owner, regardless of the number of properties owned by the property owner and regardless of whether the property owner is the applicant.

g. No person may be issued more than one permit.

7. Transferability and Enforcement

a. Permit Transferability. A permit issued for activities under this section shall not be transferred or assigned to another person, entity, or address, nor shall the permit authorize any person, other than the person named therein, to commence or carry on the business. Upon termination of the occupant's residency, the home occupation permit shall become null and void.

b. Revocation of Permit. Upon the filing of two or more verified complaints within a calendar year regarding a permit issued for activities under this section, the zoning administrator, or his or her designee, shall notify the permit holder in writing of such complaints and the zoning administrator, or his or her designee, will determine whether such complaints are valid. If it is determined that violations have occurred, the zoning administrator may revoke a permit as provided in Section 17.40.590. Once a permit has been revoked pursuant to this subsection, no home occupation permit shall be issued to the applicant for the same property for a period of one year from the date of the revocation. The permit holder may appeal the zoning administrator's decision to the board of zoning appeals for a public hearing as provided in this title. Other violations of this Subsection D are punishable by a fine of fifty dollars per day, per violation.

8. Permit expiration and renewal

a. A home occupation permit shall expire three hundred sixty-five days after it is issued unless it is renewed prior to its expiration.

b. The codes department may promulgate additional regulations by which a renewal application may be submitted.

c. The renewal application must include a statement verified by affidavit that the home occupation remains in compliance with Section 17.16.250.D.

9. Sunset date. The provisions of this subsection D shall expire and be null and void on January 7, 2023 unless extended by resolution of the metropolitan council.*

E. Short Term Rental Property Owner-Occupied. STRP owner-occupied is permitted as an accessory use in all zoning districts that allow residential use excluding NS districts provided a permit has been issued for operation of the property as an STRP pursuant to this section. In IWD, IR and IG, STRP is permitted as an accessory use to a multi-family use associated with Manufacturing, Artisan use.

1. All STRP owner-occupied activity must be permitted in accordance with Metropolitan Code § 6.28.030. (Res. RS2022-1380 § 1, 2022; Ord. BL2021-798 §§ 1, 2, 2021; Ord. BL2020-187 §§ 1, 2, 2020; Amdts. 1—5 to Ord. BL2019-48 § 1, 2020; Ord. BL2019-48 § 1, 2020; Ord. BL2019-6 § 2, 2019; Ord. BL2019-1633 §§ 6—10, 12, 13, 2019; Amdts. 5, 8, 9 to Ord. BL2017-608 § 6, 2018; Ord. BL2017-608 §§ 5, 6, 2018; Ord. BL2017-653 § 1, 2017; Amdt. 1 to Ord. BL2016-492 § 5, 2017; Ord. BL2016-492 § 5, 2017; Ord. BL2016-309 § 3, 2016; Ord. BL2015-1153 § 16, 2015; Ord. BL2015-1121 § 20, 2015; Ord. BL2014-909 § 3, 2015; Ord. BL2013-629 § 2, 2014; Amdt. 1 to Ord. BL2011-47 § 4, 2012; Ord. BL2011-47 § 4, 2012; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; § 2(2) of Amdt. 1 with Ord. 96-555 § 4.4(A), 1997)

17.16.260 Institutional accessory uses.

(Refer to zoning district land use table)

A. Day Care—Parents Day Out. Day care for preteenage children, for not more than twelve hours in any one week, shall be an accessory use to any institutional principal use.

B. Monastery or Convent. Such uses shall be an accessory use to a religious institution principal use.

C. School Day Care. Day care centers of unlimited size for before, during and after school programs shall be an accessory use to community education and college or university principal uses. (Ord. 96-555 § 4.4(B), 1997)

17.16.270 Office accessory uses.

(Refer to zoning district land use table)

A. Leasing/Sales Office. A tenant-leasing office is permitted as an accessory use to a multifamily development. Such office may include clubhouse, laundry and recreational facilities, and other such conveniences associated with a residential development. A developing subdivision of five or more residential lots may use a residential structure as a temporary sales office. (Ord. 96-555 § 4.4(c), 1997)

17.16.275 Medical accessory uses.

(Refer to zoning district land use table)

A. Medical Appliance Sales.

1. This use shall be located within the same building as the principal office use.

2. The leasable floor area for the accessory use may have one access point from within the office building as well as one outside entrance/exit.

3. This use shall occupy no more than ten percent of the gross floor area within the principal office building. (Ord. 98-1268 § 1 (part), 1998)

17.16.280 Commercial accessory uses.

(Refer to zoning district land use table)

A. Business Service.

1. This use shall be located within the same building as the office principal use.

2. The leasable floor area for the accessory use shall be accessible only from inside the office building. There shall be no signage advertising the service(s) to the general public on the exterior of the office building.

3. This use shall occupy no more than ten percent of the gross floor area within the principal office building.

B. Inventory Stock. The indoor storage of inventory stock shall be accessory to nonresidential principal uses.

C. Restaurant, Fast-Food/Restaurant, Full-Service/Restaurant, Take-Out.

1. This use shall be located within the same building as the office principal use.

2. The leasable floor area for the accessory use shall be accessible only from inside the office building. There shall be no signage advertising the service(s) to the general public on the exterior of the office building.

*Editor's note—Section 1 of Res. RS2022-1380, passed Feb. 15, 2022, states: That the existing provisions of Section 17.16.250.D of the Metropolitan Code of Laws are hereby extended indefinitely until otherwise acted on by the Metropolitan Council.

3. This use shall occupy no more than ten percent of the gross floor area within the principal office building.

D. Retail.

1. This use shall be located within the same building as the office principal use.

2. The leasable floor area for the accessory use shall be accessible only from inside the office building. There shall be no signage advertising the service(s) to the general public on the exterior of the office building.

3. This use shall occupy no more than ten percent of the gross floor area within the principal office building.

E. Personal Care Services.

1. This use shall be located in the same building as the principal use.

2. In total, all personal care uses shall occupy no more than ten percent of the gross floor area within the principal building. (Ord. BL99-117 § 1 (part), 2000; Ord. 96-555 § 4.4(D), 1997)

17.16.290 Communication accessory uses.

(Refer to zoning district land use table)

A. Amateur Radio Antenna. In all residential zone districts, transmission and reception antennae may be attached to a single tower accessory to any residential dwelling. The following restrictions shall apply.

1. Antennae may be mounted on a single tower or pole, or attached to the dwelling or accessory structure provided only one such support or attachment shall be permitted per lot. Guy wires shall not extend beyond the property boundary.

2. The maximum height of antennae shall be sixty feet, as measured from finished grade at the base of the support structure.

3. The tower or pole support shall be located to the rear of the dwelling and shall be set back from all property lines a distance equal to one-half the height of the entire structure, including antennae.

B. Multi-Media Production. This use shall be accessory to a college or university.

C. Satellite Dish. In all residential zone districts, a single satellite earth station antenna shall be permitted only as an accessory use to a residential dwelling. A ground-mounted antenna exceeding three and one-half feet in diameter shall be located behind the rear wall of the residence, shall comply with all minimum required setbacks and shall not exceed sixteen feet in height from grade. (Ord. 96-555 § 4.4(E), 1997)

17.16.300 Industrial accessory uses.

(Refer to zoning district land use table)

A. Fuel Storage. The storage of petroleum fuel, oils and lubricants may be an accessory use to activities in nonresidential zone districts provided that the quantity of stored fuels does not exceed what is incidental and necessary to conduct the business. Such fuels shall be quantified, stored, handled and used in compliance with the metropolitan fire code.

B. Tasting Room.

a. This use shall be located within the same building as the distillery or brewery, or within the same building as the office of the distillery or brewery.

b. The floor area used for the public portion of the tasting room shall be accessible only from inside the building.

c. The tasting room shall be limited to a maximum of no more than one thousand five hundred square feet gross floor area or ten percent of the gross floor area of the distillery or brewery, whichever is greater.

d. The hours and days of operation shall be limited to the hours and days of the distillery or brewery operating schedule.

e. Signage advertising the tasting room shall be no greater than sixteen square feet in size.

f. In a tasting room associated with a distillery, only liquor produced by the distillery may be served or sold.

g. In a tasting room associated with a brewery, only beer produced by the brewery may be served or sold, food may be served.

h. A minimum of five parking spaces shall be required. (Amdt. 1 to Ord. BL2012-204 § 3, 2012; Ord. BL2012-204 § 3, 2012; Ord. 96-555 § 4.4(F), 1997)

17.16.310 Waste management accessory uses.

(Refer to zoning district land use table)

A. Medical Waste. The storage and preparation for shipment of medical wastes shall be accessory to healthcare.

B. Recycling Collection Center. The collection and temporary storage of small recyclable items such as cans, glass and plastic containers, cardboard and paper shall be considered an accessory use to any nonresidential principal use, provided that all storage is within totally enclosed weather-resistant containers and the lot is kept debris-free. (Ord. 96-555 § 4.4(G), 1997)

17.16.320 Recreation and entertainment accessory uses.

(Refer to zoning district land use table)

A. Rehearsal Hall. This use shall be accessory to a college or university.

B. Stadium/Arena/Convention Center. This use shall be accessory to a college or university. (Ord. 96-555 § 4.4(H), 1997)

17.16.330 Other accessory uses.

(Refer to zoning district land use table)

A. Agricultural Activity.

1. Zone Districts. An agricultural activity shall only be permitted as an accessory use in the RS80, RS40, RS30 and RS20 and R80, R40, R30, and R20 residential zoning districts.

2. Location. The property containing the residence and agricultural activity shall not be located within the urban services district.

3. Lot Size. The minimum lot size shall be five acres.

4. Operation. An agricultural activity shall not include any roadside stand, nor shall a "cut your own" or "pick your own" activity of any items grown, produced or raised on or off-site be offered, whether such stand or offering is supervised or unsupervised, and whether the item(s) are offered for sale or not.

B. Domestic Animals/Wildlife. Native and exotic animals and common domestic farm animals, defined as Class II and Class III wildlife (Tennessee Code Annotated 70-4-403), which are kept outdoors for any purpose other than agricultural business, shall be an accessory use to a residence. The following land use development standards shall apply.

1. Zone Districts. Such animals shall only be permitted as an accessory use in the RS80, RS40, RS30, RS20 and R80, R40, R30 and R20 residential zone districts.

2. Location. The property containing the residence and farm animals/wildlife shall not be located within the urban services district.

3. Lot Size. The minimum lot size shall be five acres.

4. All pens, runs, paddocks, pastures and other open outdoor areas shall be fully enclosed by fencing. Barns, stables, stalls, and similar shelters shall not be located within two hundred fifty feet of a residential structure in a residential zone district.

5. Such accessory use shall obtain all necessary permits from the Tennessee Wildlife Resources Agency, Tennessee Department of Agriculture, and/or the metropolitan department of health pursuant to Title 8 of the Metropolitan Code of Laws. (Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 4.4(I), 1997)

Chapter 17.20

PARKING, LOADING AND ACCESS

Sections:

Article I. General Provisions

17.20.010 Purpose and intent.
17.20.020 Applicability.

Article II. Parking and Loading Requirements

17.20.030 Parking requirements established.
17.20.040 Adjustments to required parking.
17.20.050 Handicapped parking.
17.20.060 Parking area design standards.
17.20.070 Queuing requirements for drive-through facilities.
17.20.080 Off-site parking.
17.20.090 Deferred parking.
17.20.100 Shared parking.
17.20.110 Parking reduction for preservation of protected and heritage trees.
17.20.120 Provision of sidewalks.
17.20.125 Right to appeal and seek variances.
17.20.130 Loading space requirements.
17.20.135 Bicycle parking.

Article III. Access Management

17.20.140 Multimodal transportation analysis.
17.20.150 Protection of residential areas.
17.20.160 Access from nonarterial streets.
17.20.170 Access from arterial streets.
17.20.180 Visibility.
17.20.190 Measurement of distances.

Article I. General Provisions

17.20.010 Purpose and intent.

The purpose of this chapter is to establish standards for vehicular parking, loading and access in a manner which provides for reasonable utilization of land without adversely impacting abutting properties or the community as a whole. The requirements and standards of this chapter are intended to ensure the provision of adequate and functional loading facilities for all land uses, to allow full utilization of land commensurate with sufficient levels of roadway service, and to provide reasonable vehicular access to property while at the same time protecting the operational integrity and safety of public streets. (Ord. 96-555 § 5.1, 1997)

17.20.020 Applicability.

A. New Development. New development occurring after the effective date of the ordinance codified in this title shall comply with all parking, loading and access management provisions of this chapter.

B. Change in Legally Nonconforming Development. Developments with legally nonconforming parking and loading areas on the effective date of the ordinance codified in this title shall not increase the level of nonconformance by reducing the number of existing parking or loading spaces. The following provisions shall apply to any expansion or change in use:

1. If any existing, nonconforming property has a building expansion or change of use occur such that there is an associated increased parking or loading requirement in this title of less than twenty-five percent over what was required by this title before the expansion or change of use, only the number of parking or loading spaces required by the expansion or change of use shall be added.

2. If any existing, nonconforming property has a building expansion or change of use occur such that there is an associated increased parking or loading requirement in this title of twenty-five percent or more over what was required in this title before the expansion or change of use, all required parking and loading shall be provided.

C. Downtown Code. For properties zoned DTC district, see Chapter 17.37, Downtown Code (DTC) for parking, loading and access management provisions.

D. For properties zoned RN1, RN2, RL1, RL2, or RL3 districts, see Chapter 17.38 for additional parking dimensional standards. (Ord. BL2025-1005 § 1(Exh. A), 2025; Ord. BL2009-586 § 1(Exh. A, § 35), 2010; Ord. 96-555 § 5.2, 1997)

Article II. Parking and Loading Requirements

17.20.030 Parking requirements established.

The number of parking spaces required for each land use classification of this Zoning Code is established in Table 17.20.030. Each parking space designated therein must be available for use primarily to the occupants, tenants and/or residents of the related land use, unless otherwise specified in a shared parking arrangement approved pursuant to Section 17.20.100.

A. Nonclassified Uses. For uses not specifically classified in Table 17.20.030, the zoning administrator shall apply the parking requirements for a similar listed use.

B. Multiple Uses. Lots containing more than one use shall provide parking and loading in an amount equal to the total of the requirements for all of the uses, unless a shared parking arrangement is approved pursuant to Section 17.20.100, shared parking.

C. Fractions. Any fraction less than one-half shall be disregarded and any fraction of one-half or more shall be rounded upward to the next highest full number.

D. Bench Seating. Where seating consists of benches or pews, the equivalent number of seats shall be determined using the standards of the metropolitan building code.

E. Floor Area. For parking requirements that are based on the amount of square footage in buildings, calculations shall be on a gross floor area basis.

F. Parking Study. Several uses listed in Tables 17.20.030 and 17.20.070 have a large variability in parking and/or loading demand, making it impossible to specify a single parking or loading requirement. The parking or loading requirement for such uses shall be established by the metropolitan traffic engineer based upon a parking and/or loading study. The board of zoning appeals may grant a parking reduction to the minimum parking requirement for existing religious institutions within residential districts which have a valid use and occupancy permit on the effective date of the ordinance codified in this chapter. This reduction will be based on a parking study demonstrating that the parking requirement is excessive due to carpooling, van-pooling, mass transit, and/or pedestrian movement between the religious institution and the surrounding residential neighborhood.

G. Exemptions for Pedestrian Walkways. Retail malls which contain multiple tenants where shops are predominantly served by interior pedestrian walkways may base their parking requirement on gross leasable area within the mall.

H. Mixed-Use Projects. In a mixed-use project where a traffic impact study demonstrates that there is a reduction in the number of trips due to pedestrian linkages between land uses, the applicant may claim a similar reduction in required parking based upon a parking study reviewed by the traffic engineer and authorized by the board of zoning appeals or metropolitan planning commission as applicable. (Ord. BL2025-1007 § 6(Exh. B), 2025; Ord. BL2022-1412 § 2, 2022; Ord. BL2022-1073 § 5, 2022; Ord. BL2019-32 § 4, 2019; Amdt. 1 to Ord. BL2018-1288 § 1, 2018; Ord. BL2018-1288 § 1, 2018; Ord. BL2017-899 § 3, 2017; Ord. BL2017-654 § 12, 2017; Ord. BL2015-1121 § 4, 2015; Ord. BL2015-1210 § 3, 2015; Ord. BL2008-327 § 1, 2008; Ord. BL2006-1087 § 3, 2006; Ord. BL2006-973 § 4, 2006; Ord. BL2006-972 § 4, 2006; Ord. BL2002-1016 § 1, 2002; Ord. BL2000-477 § 1 (part), 2000; Amdt. 4 to Ord. BL2000-364 § 1 (part), 2000; Ord. BL99-117 § 1 (part), 2000; Amdt. 1 (part) with Ord. 99-1644 § 1 (part), 1999; Ord. 98-1321 § 1 (part), 1998; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 5.3(A), 1997)

HOW TO DETERMINE PARKING REQUIREMENTS AND OPTIONS

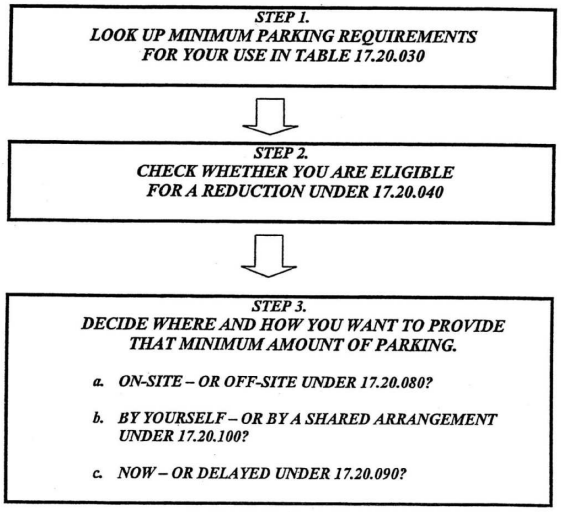


TABLE 17.20.030: PARKING REQUIREMENTS	
Land Use	**Minimum Parking Spaces Outside the UZO UZO District: See Section 17.20.040.G (exemptions are optional for calculating maximums. If not utilizing the exemptions, the standards are applied to the entire square footage of the use)**
Residential Land Uses	
Single-family	2 spaces (no maximum limit in UZO)
Two-family	2 spaces per unit (no maximum limit in UZO)
Multifamily	1 space per bedroom up to 2 bedrooms; .5 spaces per bedroom for each additional bedroom UZO district: Studio and/or 1 bedroom: 1 per unit; 2 bedroom or more: 1.5 per unit
Elderly housing	.5 spaces per unit
Mobile home dwelling	2 spaces, plus 1 guest space for every 4 units for guest parking
Accessory apartment	1 space
Boardinghouse	1 space per each rental unit, plus 1 additional space for owner or manager
Detached accessory dwelling unit	1 space (no maximum limit in UZO)
Historic bed and breakfast homestay	1 space per guestroom, plus 2 spaces per dwelling unit
Historic home events	To be determined by traffic engineer (Section 17.20.030F)
Home occupation	Same as principal use
Rural bed and breakfast homestay	1 space per room
Security residence	1 space
Institutional Land Uses	
Correctional facility	Established by the traffic engineer (Section 17.20.030F)
Cultural center	1 space per 300 square feet UZO district: 1 space per 1,000 square feet for museum; 1 space per 300 square feet for all others
Day care center	1 space for each 5 individuals accommodated, up to 50 individuals; for more than 50 individuals accommodated, 10 spaces plus 1 space per 10 individuals
Day care home—Large	1 space plus requirement for principal use, plus 2 spaces for patrons
Day care home—Small	1 space plus requirement for principal use, plus 1 space for patrons
Day care—Parent's day out	Established by the traffic engineer (Section 17.20.030F)
School day care	Same as day care center
Monastery or convent	1 space per bedroom UZO district: 1 space per 2 beds
Orphanage	1 space per employee UZO district: 1 space per 1,000 square feet
Religious institution	1 space per 4 seats in the sanctuary or equivalent worship space UZO district: 1 space per 6 seats in worship area or 1 space per 100 square feet in worship area without seats
Educational Uses	
Business school	1 space per 200 square feet
College or university	Established by the traffic engineer (Section 17.20.030F)
Community education	1 space per staff member, plus 10 visitor spaces (elementary and middle schools); plus 1 space per each 5 students (high schools)
Dormitory	1 space per each 2 rooming units
Fraternity/sorority house	Same as multifamily; plus 1 space per 300 square feet of meeting area
Personal instruction	1 space per 200 square feet
Vocational school	1 space per 200 square feet

TABLE 17.20.030: PARKING REQUIREMENTS	
Land Use	**Minimum Parking Spaces Outside the UZO UZO District: See Section 17.20.040.G (exemptions are optional for calculating maximums. If not utilizing the exemptions, the standards are applied to the entire square footage of the use)**
Office Uses	
Financial institution	1 space per 200 square feet UZO district: First 2,000 square feet: exempt; 1 space per 500 square feet for floor space in excess of 2,000 square feet
General office	1 space per 300 square feet UZO district: First 2,000 square feet: exempt; 1 space per 500 square feet for floorspace in excess of 2,000 square feet
Sales/leasing office	1 space per 200 square feet
Medical Uses	
Assisted care living	1 space per 3 beds
Hospice	1 space per bedroom
Hospital	2 spaces per bed
Medical appliance sales	1 space per 200 square feet
Medical office	1 space per 200 square feet UZO district: First 2,000 square feet: exempt; 1 space per 400 square feet for floorspace in excess of 2,000 square feet
Medical or scientific lab	1 space per 300 square feet UZO district: 1 space per 500 square feet
Nonresidential drug treatment facility	1 space per 150 square feet
Nursing home	1 space per 3 beds UZO district: 1 space per 5 beds
Outpatient clinic	1 space per 200 square feet
Rehabilitation services	1 space per 3 beds
Residence for the handicapped	1 space per 3 beds UZO district: 1 space per 5 beds
Veterinarian	1 space per 300 square feet UZO district: 1 space per 300 square feet
Commercial Uses	
After hours establishment	1 space per 75 square feet
Agricultural business	Established by the traffic engineer (Section 17.20.030F)
ATM (principal use only)	5 spaces
Automobile convenience	1 space for each pump plus 1 space for each 200 square feet
Automobile parking	None
Automobile repair	2 spaces, plus 4 spaces per service bay
Automobile sales, new and used	1 space per 250 square feet of enclosed sales area plus 1 space per 1,000 square feet of outdoor vehicle display area plus 2 spaces per service bay or stall UZO district: 1 space per 500 square feet of enclosed sales area plus 1 space per 2,500 square feet of outdoor vehicle display area plus 2 spaces per service bay or stall
Automobile service	4 spaces for each of the first four service bays or stalls, plus 2 spaces for each additional service bay or stall
Automobile service, oil change	2 spaces per bay or stall
Automobile service, oil change service	4 spaces for up to the first 4 stalls and 1 space for each additional stall
Bar or nightclub	1 space per 75 square feet
Bed and breakfast inn	1 space per bedroom
Business service	1 space per 200 square feet
Carpet cleaning	1 space per 500 square feet

TABLE 17.20.030: PARKING REQUIREMENTS	
Land Use	**Minimum Parking Spaces Outside the UZO UZO District: See Section 17.20.040.G (exemptions are optional for calculating maximums. If not utilizing the exemptions, the standards are applied to the entire square footage of the use)**
	UZO district: 1 space per 800 square feet
Car wash (full service)	2 spaces for each stall (excluding the actual stall itself), plus 1 space per employee UZO district: 1 space per 1,000 square feet
Car wash (self service)	2 spaces for each stall (excluding the actual stall itself)
Custom assembly	1 space per 400 square feet
Donation center, drop-off	1 space per 200 square feet
Funeral home	1 space per 3 permanent seats plus 1 space per 25 square feet for temporary seats. If no chapel is provided, 1 space per 500 square feet UZO district: 1 space per 3 permanent seats and if no chapel, 1 space per 500 square feet
Furniture store	1 space per 200 square feet of display area; 1 space per 1,000 square feet of storage area UZO district: 1 space per 1,000 square feet
Home improvement sales	1 space per 200 square feet UZO district: 1 space per 500 square feet
Hotel/motel	1 space per rooming unit, plus 1 space per 2 employees UZO district: 1 space per rooming unit plus 1 space per 4 employees plus required spaces for accessory uses
Inventory stock	1 space per 1,000 square feet
Kennel	1 space per 400 square feet
Laundry plants	1 space per 500 square feet
Liquor sales	1 space per 200 square feet UZO district: 1 space per 400 square feet
Major appliance repair	1 space per 500 square feet UZO district: 1 space per 800 square feet
Personal care services	1 space per 200 square feet UZO district: First 2,000 square feet: exempt; 1 space per 200 square feet for floorspace in excess of 2,000 square feet
Restaurant, fast-food	1 space per 100 square feet
Restaurant, full-service	1 space per 100 square feet UZO district: First 1,000 square feet: exempt; 1 space per 150 square feet for floorspace in excess of 1,000 square feet
Restaurant, take-out	10 spaces UZO district: Exempt
Retail	1 space per 200 square feet UZO district: General Retail: First 2,000 square feet: exempt; 1 space per 200 square feet for 2,000 to 50,000 square feet and 1 space per 250 square feet for 50,000 to 100,000 square feet and 1 space per 300 square feet for 100,000 to 400,000 square feet and 1 space per 350 square feet for greater than 400,000 square feet Convenience Retail: First 2,000 square feet: exempt; 1 space per 250 square feet thereafter;

TABLE 17.20.030: PARKING REQUIREMENTS	
Land Use	**Minimum Parking Spaces Outside the UZO UZO District: See Section 17.20.040.G (exemptions are optional for calculating maximums. If not utilizing the exemptions, the standards are applied to the entire square footage of the use)**
	Shopping Center Retail: 1 space per 250 square feet for less than 400,000 square feet and 1 space per 225 square feet for 400,000 to 600,000 square feet and 1 space per 200 square feet for greater than 600,000 square feet; Outdoor (except vehicle sales, limited): 1 space per 1,000 square feet of lot area Mobile vendors: 6 spaces for up to 1,200 square feet; 1 space for each additional 200 square feet
Riding stable	Established by the traffic engineer
Self-service storage	4 spaces
Vehicular sales, limited Vehicular rental/leasing	1 space per 250 square feet of enclosed sales area plus 1 space per 1,000 square feet of outdoor vehicle display area plus 2 spaces per service bay or stall UZO district: 1 space per 500 square feet of enclosed sales area plus 1 space per 2,500 square feet of outdoor vehicle display area plus 2 spaces per service bay or stall
Wrecker service	1 space per 200 square feet UZO district: 1 space per 250 square feet of office space
Communication Uses	
Amateur radio antenna	None
Audio/video tape transfer	1 space per 300 square feet
Multi-media production	Established by the traffic engineer (Section 17.20.030F)
Printing and publishing	1 space per 750 square feet
Radio/TV/satellite tower	None
Radio/TV studio	1 space per employee UZO district: 1 space per 400 square feet
Satellite dish	None
Telephone services	None
Industrial Uses	
Building contractor supply	1 space per 1,000 square feet
Distributive business/wholesale	1 space per 1,000 square feet
Fuel storage	None
Heavy equipment sales and service	1 space per 1,000 square feet of building area
Manufacturing, artisan	1 space per 1,500 square feet
Manufacturing, heavy	1 space per 1,500 square feet
Manufacturing, light	1 space per 1,500 square feet
Manufacturing, medium	1 space per 1,500 square feet
Natural gas compressor station	1 space per employee
Research service	1 space per 500 square feet UZO district: 1 space per 800 square feet
Scrap operation	1 space per employee, plus 1 space per 5,000 square feet of lot area UZO district: 1 space per 5,000 square feet of lot area
Tank farm	1 space per employee
Warehouse	1 space per 2,500 square feet
Transportation Uses	
Airport, medium or large commercial service and associated uses	Established by the traffic engineer (Section 17.20.030F)
Airport/heliport	Established by the traffic engineer (Section 17.20.030F)

TABLE 17.20.030: PARKING REQUIREMENTS	
Land Use	**Minimum Parking Spaces Outside the UZO UZO District: See Section 17.20.040.G (exemptions are optional for calculating maximums. If not utilizing the exemptions, the standards are applied to the entire square footage of the use)**
Boat dock (commercial)	1 space per slip or berth UZO district: 1 space per 5 berths plus 1 space per 500 square feet of dry storage
Bus station/landport	Established by the traffic engineer (Section 17.20.030F)
Bus transfer station	None
Commuter rail	Established by the traffic engineer (Section 17.20.030F)
Helistop	5 spaces
Motor freight	1 space per 1,000 square feet of indoor storage area
Park and ride lot	None
Railroad station	Established by the traffic engineer (Section 17.20.030F)
Railroad yard	1 space per employee
Water taxi station	Established by the traffic engineer (Section 17.20.030F)
Utility Uses	
Power plant	1 space per 400 square feet for office use plus 1 space per 2,000 square feet for other uses
Power/gas substation	None
Reservoirs/water tank	None
Safety services	1 space per 500 square feet
Wastewater treatment	Established by the traffic engineer (Section 17.20.030F)
Water/sewer pump station	None
Water treatment plant	Established by the traffic engineer (Section 17.20.030F)
Collection center	1 space per employee
Construction/demolition landfill	1 space per employee
Medical waste	1 space plus 1 per employee UZO district: 2 spaces per 3 employees
Recycling collection center	1 space per employee UZO district: 2 spaces per 3 employees
Sanitary landfill	1 space plus 1 per employee UZO district: 2 spaces per 3 employees
Waste transfer	1 space per employee UZO district: 2 spaces per 3 employees
Recreation and Entertainment Uses	
Adult entertainment	1 space per 75 square feet
Camp	Established by the traffic engineer (Section 17.20.030F)
Club	Established by the traffic engineer (Section 17.20.030)
Commercial amusement (inside)	1 space per 200 square feet
Commercial amusement (outside)	Established by the traffic engineer (Section 17.20.030F)
Country club	1 space per 300 square feet
Drive-in movie	1 space per employee
Driving range	Established by the traffic engineer
Fairground	Established by the traffic engineer (Section 17.20.030F)
Golf course	Established by the traffic engineer (Section 17.20.030F)
Greenway	Established by the traffic engineer (Section 17.20.030F)
Public park	Established by the traffic engineer (Section 17.20.030F)
Racetracks	Established by the traffic engineer (Section 17.20.030F)
Recreation center	Established by the traffic engineer (Section 17.20.030F)
Rehearsal hall	1 space per 3 seats
Stadium/arena/convention center	Established by the traffic engineer (Section 17.20.030F)
Temporary festival	Established by the traffic engineer (Section 17.20.030F)

TABLE 17.20.030: PARKING REQUIREMENTS	
Land Use	**Minimum Parking Spaces Outside the UZO UZO District: See Section 17.20.040.G (exemptions are optional for calculating maximums. If not utilizing the exemptions, the standards are applied to the entire square footage of the use)**
Theater	1 space per 3 seats—Established by the traffic engineer for facilities with a capacity of more than 500 spectators
Zoo	Established by the traffic engineer (Section 17.20.030F)
Other Uses	
Cemetery	1 space per employee
Domestic animals/wildlife	None
Hazardous operations	Established by the traffic engineer (Section 17.20.030F)
Mineral extraction	Established by the traffic engineer (Section 17.20.030F)

17.20.040 Adjustments to required parking.

Notwithstanding the provisions of Section 17.20.030:

A. No parking shall be required for uses located in the DTC district.

B. No parking shall be required for existing structures in the CF, CF-NS, MUI, MUI-NS, MUI-A, or MUI-A-NS districts which were constructed prior to December 24, 1974.

C. For uses located within the CF, CF-NS, MUI, MUI-NS, MUI-A, or MUI-A-NS districts within the I-40/I-65/I-265 loop south of the CSX railroad, and north of, or having frontage on, Gateway Boulevard, and which are located within a council-approved redevelopment district, the off-street parking requirement shall be one-quarter the requirement set forth in Table 17.20.030.

D. For uses located within the CF, CF-NS, MUI, MUI-NS, MUI-A, or MUI-A-NS districts within the I-40/I-65/I-265 loop, south of properties fronting on Gateway Boulevard, and which are located within a Council approved redevelopment district, the off-street parking requirement shall be one-half the requirement set forth in Table 17.20.030.

E. Within the urban zoning overlay district, for uses not eligible for a parking reduction or exemption pursuant to Sections 17.20.040A through 17.20.040D, the minimum amount of required parking shown in Table 17.20.030 shall be adjusted as follows. The combined effect of all applicable adjustments in this section shall not reduce the off-street parking required by Table 17.20.030 by more than twenty-five percent.

F. On-street parking on narrow streets within the urban zoning overlay district: Unless otherwise posted and pursuant to other limitations set forth in Section 17.20.040, on-street parking may be used to meet minimum parking requirements for properties on only one side of non-arterial streets within the urban zoning overlay district that are less than twenty-six feet wide (curb to curb). For streets that are oriented northerly to southerly, properties abutting the easterly side qualify. For streets that are oriented easterly to westerly, properties abutting the northerly side qualify.

G. UZO parking standards and requirements shall be construed as parking maximum requirements within the UZO and parking minimum requirements within any UDOs outside the UZO or within any SP which references UZO standards as a minimum or within any Neighborhood Landmark Overlay districts applied after November 15, 2022, within the UZO. No parking shall be required within the UZO, except as noted above. The UZO parking standard shall also be used to determine floor area ratio exemptions as set out in Section 17.12.070.D of this Ordinance for uses that are not required to provide parking.

Adjustment	Criteria	Parking Adjustment
Transit	Resident or nonresident use (other than an after hours establishment) is located within 660 feet of a public transit route.	10% reduction
Pedestrian Access	Nonresidential use is located where residents of all residential and mixed-use areas within 1,320 feet of the subject property can walk to and from the nonresidential use on a continuous sidewalk system (ignoring intervening streets)	10% reduction

Adjustment	Criteria	Parking Adjustment
Public Parking Lots	Nonresidential use is located within 660 feet of a parking lot that is available for use by the public without charge (either directly or through a validation program in which the subject use participates).	10% reduction
On-Street Parking	Single-family or duplex residential use is located along one or more public street frontages where public parking is permitted.	One legal on-street parking space (to a maximum of two parking spaces) can be substituted for every required off-street parking space provided the on-street space is located on a public right-of-way immediately abutting the property or tenant space seeking the parking adjustment. Where a partial space straddles an extension of a side property line, the space may be counted by the abutting property owner in front of whose property 50% or more of the space is located.
	Multifamily residential or nonresidential use is located along one or more public street frontages where public parking is permitted.	One legal on-street parking space can be substituted for ½ of every required off-street parking space provided the on-street space is located on a public right-of-way immediately abutting the property or tenant space seeking the parking
Contextual Front Setbacks	Residential or nonresidential use builds within ten feet of the rights-of-way in accordance with the contextual front setback provision contained in Section 17.12.035(A)(3) (Major new investment provision).	10% reduction

(Ord. BL2022-1412 § 3, 2022; Ord. BL2020-117 § 1, 2020; Ord. BL2019-111 § 1(Exh. A, § 28), 2020; Ord. BL2011-898 § 11, 2011; Ord. BL2009-586 § 1(Exh. A, § 36), 2010; Ord. BL2008-327 § 2, 2008; Ord. 2002-1017 § 1, 2002; Ord. BL2000-364 § 1 (part), 2000; Amdt. 2 with Ord. 99-1614 § 1, 1999; Ord. 96-555 § 5.3(B), 1997)

17.20.050 Handicapped parking.

An appropriate number of parking spaces shall be specifically designated, located and reserved for vehicles licensed by the state for use by the handicapped. (Ord. 96-555 § 5.3(C), 1997)

17.20.060 Parking area design standards.

A. Standard and Compact Spaces. Parking spaces shall be classified as standard or compact spaces with required dimensions in accordance with Table 17.20.060. No development shall be allowed to have more than thirty percent of the total required parking as compact spaces.

B. Parking Space and Aisle Dimensions. The minimum required dimensions of parking spaces and aisles are established in Table 17.20.060. For parking angles not shown in the table, dimensions shall be interpolated by the metropolitan traffic engineer. Minor deviations from these standards may be approved by the traffic engineer for parking structures. The dimensions for a sixty-five degree parking layout are graphically shown in Figure 17.20.060.

C. Parallel Parking. Parallel parking spaces shall have a minimum length of twenty-three feet and a minimum width of eight feet.

D. Residential Parking. Required parking spaces for a single-family or two-family dwelling unit shall be a minimum of eight feet wide and twenty feet long. Required parking spaces may be placed end to end. Garage doors opening toward a public street shall be a minimum of twenty feet from the property line. Within the urban zoning overlay district, no off-street parking area or loading area shall be located within any required street setback area, unless it is located on a driveway in accordance with Section 17.20.060G.

E. Use of Parking Areas. Required parking spaces and associated aisles and maneuvering areas shall be reserved for vehicle use at all times.

F. Off-street Parking Standards. The following standards shall apply to all off-street parking areas.

1. No parking space shall open directly onto a public street (single-family and two-family dwellings and townhomes are exempt).

2. Except for single-family and two-family dwellings, aisles, driveways and joint access easements shall not be used for parking vehicles.

3. Required parking spaces for all uses except single-family and two-family dwellings shall be designed to permit entry and exit without moving any other vehicle.

4. No parking space shall be located so as to block designated emergency access.

5. No portion of any required parking space shall be located within the right-of-way of a street or alley.

6. For parking areas with ten or more spaces, a minimum queuing distance of twenty feet shall be provided along all access drives between the street right-of-way line and the nearest parking space.

7. The zoning administrator or planning commission, as applicable, may request the traffic engineer to review site plans for on and off-site traffic circulation.

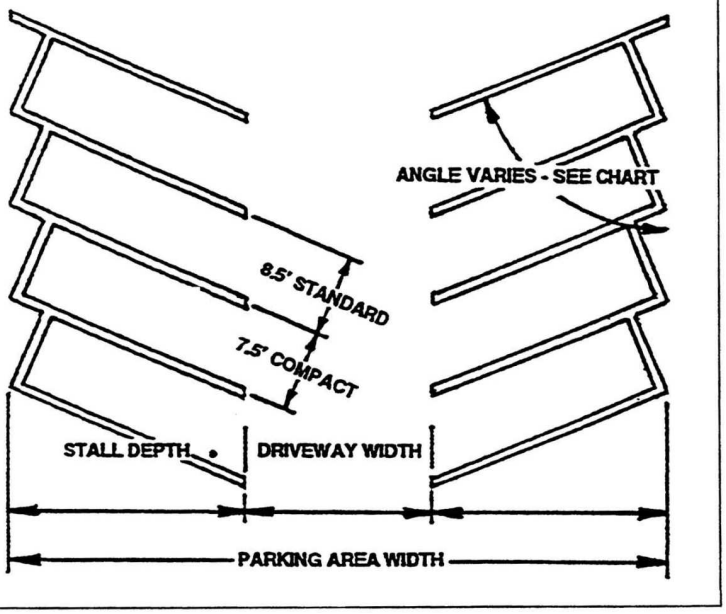
G. Paving and Marking. Permanent parking areas containing five or more spaces shall be surfaced with asphalt or concrete, or other hard-surfaced dustless materials, and shall be constructed to provide for adequate drainage. Each space shall be marked by a single or double stripe, with stall width measured centerline to centerline. Single-family and two-family dwellings shall be exempt from this requirement. All private driveways and parking areas shall also conform to the requirements of Section 13.12.200.

H. Curbs. Curbs or other equivalent means shall be provided to prevent any vehicle using a parking area from encroaching on any public right-of-way, on-site sidewalk, required landscaping area or adjacent property.

Table 17.20.060
PARKING SPACE AND AISLE DIMENSIONS

Standard Size Spaces with Minimum Width of eight feet six inches			
Angle (Degrees)	**Parking Area Width (Feet)**	**Stall Depth (Feet)**	**Driveway Width (Feet)**
90	60	18	24
75	57	19	19
70	56	19	18
65	55	19	17
60	54	19	16
55	53	19	15
50	52	19	14
45	49	18	13
35	46	17	12
Compact Size Spaces with Minimum Width of seven feet six inches			
Angle (Degrees)	**Parking Area Width (Feet)**	**Stall Depth (Feet)**	**Driveway Width (Feet)**
90	50	15	20
75	47	16	20
70	46	16	14
65	45	16	13
60	44	16	12
55	43	16	11
50	42	16	10
45	40	15	10
40	38	14	10
35	37	13.5	10
Note: For one-way driveways, only stall depth and driveway width shall apply			

Figure 17.20.060
PARKING SPACE DIMENSIONS



(Ord. BL2020-188 § 3, 2020; Ord. BL2016-493 § 5, 2017; Ord. BL2000-364 § 1 (part), 2000; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 5.3(D), 1997)

17.20.070 Queuing requirements for drive-through facilities.

The minimum number of queue spaces, including the vehicle being serviced, shall be provided according to Table 17.20.070. Each queue space shall be a minimum of twenty feet in length. Unless otherwise indicated in the table, queuing shall be measured from the point of ultimate service to the end of the queuing lane. Each queue lane shall be clearly defined and designed so as not to conflict or interfere with other traffic using the site. Each land use in Table 17.20.070 shall have a bypass lane with a minimum width of twelve feet and shall be clearly distinguished from the queuing lane by markings. Queuing vehicles shall not stand within a public street or alley rights-of-way.

Table 17.20.070
QUEUING REQUIREMENTS FOR DRIVE-THROUGH FACILITIES

Land Use	Min. Number of Queue (Drive-Through) Spaces
Bank teller lane	5
ATM	3
Restaurant, drive through	5
Car wash (full service)	5
Car wash (self-service)	3
Car wash (automobile convenience)	3
Automotive service oil change station	3
Retail	4
Automobile convenience, gasoline pump island	30 feet away from any driveway ramp

(Ord. BL2006-972 § 5, 2006; Ord. 98-1321 § 1 (part), 1998; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 5.3(E), 1997)

17.20.080 Off-site parking.

All required parking spaces shall be located on the same lot as the principal use, provided that the zoning administrator or planning commission (as applicable) may permit all or a portion of the required parking spaces to be located on a remote and separate lot from the lot on which the principal use is located, based on the following provisions.

A. Qualifying Districts. Land uses on lots which contain existing buildings on the effective date of the ordinance codified in this chapter located within any of the commercial, industrial, office, ORI, ORI-NS, ORI-A, ORI-A-NS, mixed-use or shopping center districts or within a planned unit development (PUD) or urban design overlay district, may qualify for locating required parking on a separate lot. Land uses on lots which develop after the effective date of the ordinance codified in this chapter located within the mixed-use districts may also qualify for locating required parking on a separate lot. Any lot utilized to satisfy the parking requirements of an off-site land use must be zoned for automotive parking uses in the zoning district land use table of Section 17.08.030 and be connected to the principal use by a continuous sidewalk system. In a planned unit development, institutional overlay, or shopping center district both lots must be part of the same master development plan or a unified plat of subdivision as authorized by Chapter 17.40, Article V.

B. Separation.

1. The nearest property line of any off-site parking area required for a residential use shall not be located more than two hundred feet away from the residential use as measured from the nearest property line of the residential use.

2. The nearest property line of any off-site parking area for a nonresidential use:

a. Shall not be located more than five hundred feet away from the nonresidential use as measured from the nearest property line of the nonresidential use; and

b. Shall not be separated from the nonresidential use by any street with more than four travel lanes.

3. Properties in the MUI, MUI-NS, MUI-A, MUI-A-NS, CF, CF-NS, SCR, SCR-NS districts, and all religious institutions subject to Section 17.16.170(E)(2), shall be exempt from the above maximum separation provisions.

4. Within the qualifying districts, the above distance standards may be increased for those land uses identified in Table 17.20.030 in which the traffic engineer must establish the parking requirement, provided that the location of the off-site parking lot is recommended by the traffic engineer.

C. Common Ownership. Any off-site parking area shall be under the same ownership as the principal use to which it is accessory, or otherwise secured by a lease of no less than, three years with a guaranteed renewal option or the lease is equal to the term of any lease for the principal use, whichever is greater, and all necessary legal instruments shall be executed and recorded with the Register of Deeds against all parcels involved. Copies of all recorded lease agreements shall be provided to the zoning administrator prior to the issuance of zoning permits. All renewal agreements pertaining to off-site parking contained within the lease shall be provided to the zoning administrator prior to the end of a lease term. This is to ensure that the required number of spaces shall remain available throughout the life of the principal use.

D. Approval Criteria. The zoning administrator or planning commission (as applicable) shall base the decision to approve or disapprove a request for off-site parking on the recommendation of the metropolitan traffic engineer. (Ord. BL2019-111 § 1(Exh. A, §§ 29, 30), 2020; Ord. BL2011-898 § 11, 2011; Ord. 2002-1019 § 1, 2002; Ord. BL2000-364 § 1 (part), 2000; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 5.3(F), 1997)

17.20.090 Deferred parking.

To avoid requiring more parking spaces than actually are needed to serve a development and to reduce the visual and drainage impacts caused by large impervious areas, the zoning administrator or planning commission (as applicable) may allow some portion of the parking spaces required by this Zoning Code to be deferred if the conditions and requirements of this article are satisfied.

A. Criteria for Approval. As a condition precedent to obtaining a partial deferral, the developer shall demonstrate to the traffic engineer through a parking study that there is not a present need for the number of required parking spaces deferred. Based upon the favorable recommendation of the traffic engineer, the zoning administrator or planning commission (as applicable) may approve a deferred parking site plan. No deferred parking plan shall be approved unless the property contains sufficient land area upon which required parking can be constructed as a surface parking lot.

B. Implementation of Deferred Parking. If the justification for deferred parking is approved, the following provisions shall apply.

1. Deferred Parking Plan. A deferred parking site plan shall be prepared according to the following requirements.

a. The deferred parking plan shall be designed to contain sufficient space to meet the full parking requirements of this Zoning Code. The developer shall illustrate the layout for the full number of parking spaces, and shall designate which parking spaces are to be deferred. (See Figure 17.20.090)

b. Deferred parking spaces shall not be assigned to areas required for landscaping, or buffer yards, or areas that would otherwise be unsuitable for parking spaces because of the physical characteristics of the land or other requirements of this title.

c. The plan shall include a landscaping plan for the deferred parking area.

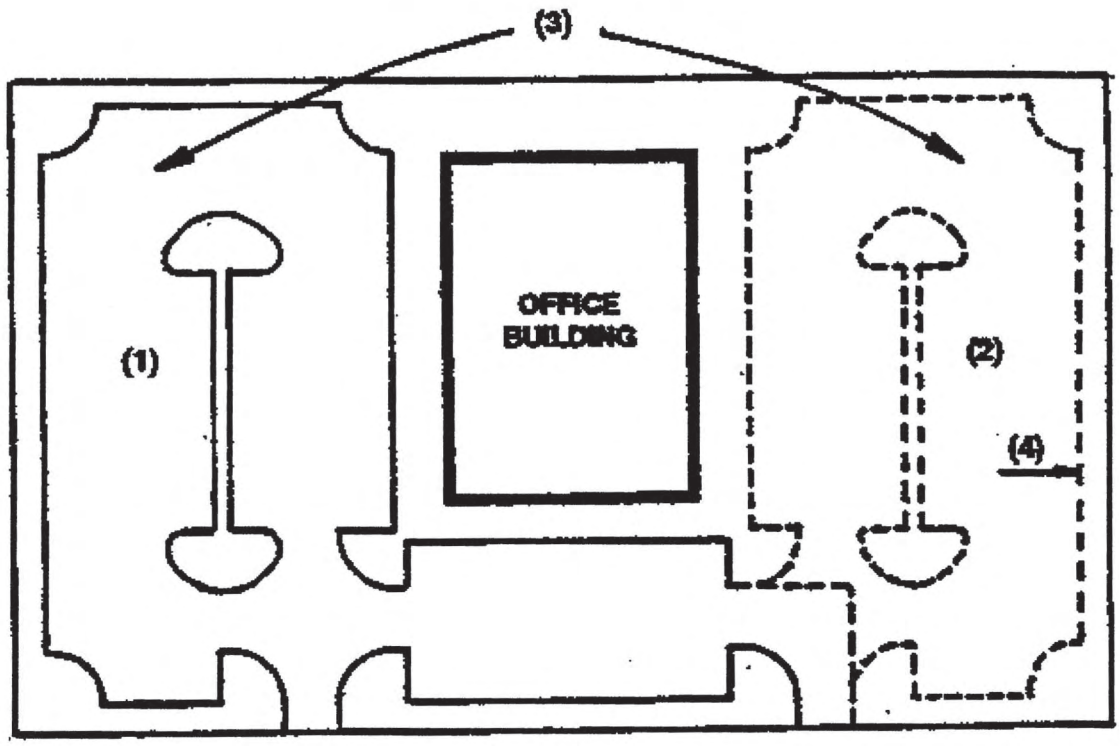
d. The plan shall be accompanied by a written commitment agreement specifying that any time after the date of issuance of the certificate of compliance, the deferred spaces shall be converted to parking spaces that conform to this Zoning Code at the developer's expense should the zoning administrator determine that the additional spaces are needed. The zoning administrator shall establish a reasonable time period for the property owner to bring the development into full compliance with the parking requirement. The developer or owner shall apply to the zoning administrator for renewal on a yearly basis. Alternatively, the developer may at any time request that the zoning administrator approve a permit allowing conversion of the deferred spaces to operable parking spaces. This written agreement will be noted on a recorded plat and in any restrictive covenants, and shall be referenced on the site plan.

e. The deferred or shared parking site plan shall contain the following note: Any expansion or change of use on this site shall conform to all parking requirements of this title.

2. Monitoring Deferred Parking. In order to effectively ensure that parking demand for developments with approved deferred parking site plans does not increase to levels where the total required parking spaces are needed, the owner must designate an employee or otherwise establish a transportation coordinator position to monitor and enforce proposed commuting patterns. Retail and restaurant land uses in the district land use table in Section 17.08.030 with less than one hundred employees will not require a transportation coordinator position.

3. Required Road Improvements. The approval of a deferred parking agreement shall not relieve or diminish any obligation by the developer to provide necessary infrastructure improvements required by ordinance or by a condition of development approval. (Ord. 98-1321 § 1 (part), 1998; Ord. 96-555 § 5.3(G), 1997)

Figure 17.20.090
DEFERRED PARKING



(1) ACTUAL PARKING LOT TO BE CONSTRACTED.
(2) UNBUILT PARKING LOT : PARKING LOT WILL BE BUILT IF SPACES ARE NEEDED AT A LATER TIME.
(3) (1) + (2) = THE TOTAL NUMBER OF PARKING SPACES WHICH WOULD BE MEET THE FULL REQUIREMENTS OF THE ZONING CODE.
(4) DEFERRED PARKING MAY NOT ENCROACH INTO ANY SETBACKS REQUIIRED BY ZONING CODE.

17.20.100 Shared parking.

Within the urban zoning overlay district, the zoning administrator or planning commission (as applicable) may approve a shared parking plan for a mixed use project when uses are located near one another and have different peak parking demands and operating hours, or other characteristics that would enable them to share parking areas without resulting in significantly higher on-street parking in surrounding areas or unauthorized use of other parking facilities, based upon a favorable recommendation of a shared parking study and site plan from the metropolitan traffic engineer. (See Figure 17.20.100) Shared parking arrangements shall be subject to the requirements set forth below.

Outside of the urban zoning overlay district, the zoning administrator or planning commission (as applicable) may approve a shared parking plan for a mixed use project when uses are located near one another and have different peak parking demands and operating hours, based upon a favorable recommendation of a shared parking study and site plan from the metropolitan traffic engineer. (See Figure 17.20.100) Shared parking arrangements shall be subject to the following requirements:

A. Agreements. In cases where the uses for which shared parking is requested are located on lots under different ownership, a three party agreement between the metropolitan government and owners shall be required and subject to approval by the metropolitan government's legal counsel. Any applicable easements and joint access corridors which tie the shared parking concept together will be required to be recorded on a final plat and in any restrictive covenants, and shall be referenced on the site plan.

B. Parking Zone Lot. Owners of multiple adjacent properties may petition to have their parcels considered as a single parcel (a "parking zone lot") for purposes of compliance with parking requirements, provided that the parking zone lot includes a sufficient number of spaces to meet the sum of the minimum off-street parking space requirements for each use within the parking zone lot. Such requests shall be reviewed and approved through the site plan approval process (Section 17.40.170(c)(2)). Documentation of an approved parking zone lot shall be recorded with the register of deeds. The approved parking zone lot may be amended or terminated through the site plan process upon (1) a petition filed by a majority of the owners whose properties include at least seventy-five percent of the square footage included in the approved parking zone lot prior to amendment or termination, and (2) submission of evidence that each use has made alternative provisions to satisfy its minimum off-street parking required by this code.

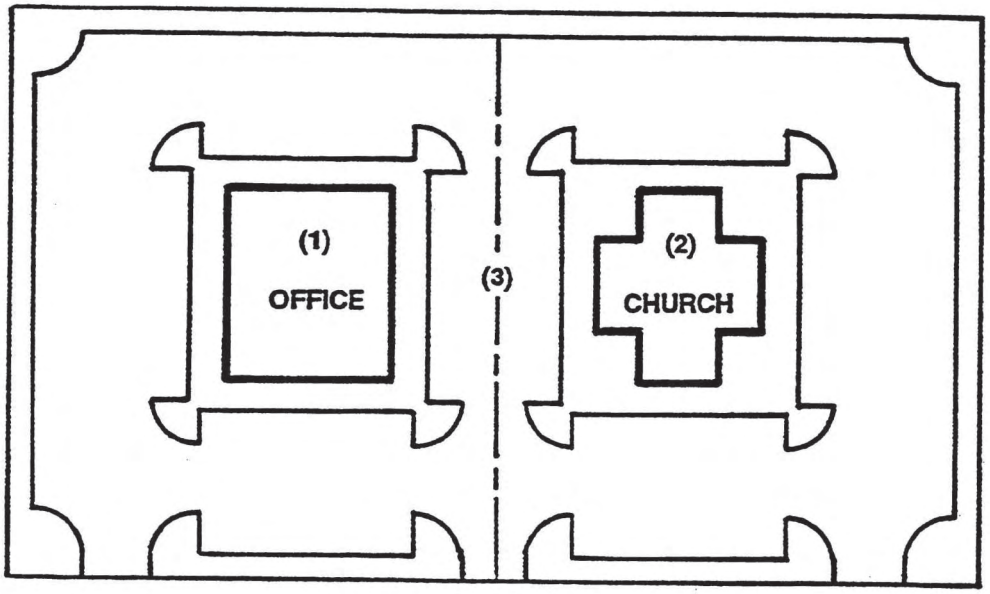
C. Criteria. In reviewing an application for a reduction in the minimum number of required parking spaces, the following shall be considered:

1. Characteristics of each use and projected peak parking demand, including hours of operation;

2. Potential reductions in vehicle movements afforded by multipurpose use of spaces by employees, customers or residents; and

3. Potential improvements in access, design, open space preservation and circulation afforded. (Ord. BL2000-364 § 18 (part), 2000; Ord. 96-555 § 5.3(H), 1997)

Figure 17.20.100
SHARED PARKING



(1) PEAK DEMAND IS ON WEEKDAYS.

(2) PEAK DEMAND IS ON SUNDAYS.

(3) ALTERNATING PEAK DEMAND WILL ALLOW SHARED PARKING CONCEPT TO WORK.

17.20.110 Parking reduction for preservation of protected and heritage trees.

A. A reduction of required parking spaces may be allowed when the reduction would result in the preservation of a protected tree with a trunk of twelve inches in diameter or greater or a heritage tree.

B. The reduction in required parking spaces shall not exceed the number of parking spaces required to prevent removal of protected or heritage trees, or the number in Table 17.20.110, whichever is less.

Table 17.20.110
MAXIMUM PARKING REDUCTION

Required Parking Spaces	Maximum Reduction
1—4	1
5—9	2
10—19	4
20 or more	20 percent

(Ord. BL2018-1416 § 3, 2019; Ord. 96-555 § 5.3(I), 1997)

17.20.120 Provision of sidewalks.

Purposes. Nashville's population and built environment has grown and continues to grow rapidly. Sidewalks are required to facilitate safe and convenient pedestrian movements for residents, employees and/or patrons, and to reduce dependency on the automobile, thus reducing traffic congestion on the community's streets and protecting air quality. The designation of an accessible and safe path for walking increases homeowner and community health and social connections.

Sidewalk networks minimize conflicts between vehicular and pedestrian movement along corridors and within and around centers identified in the General Plan (2015). Sidewalks offset a portion of the vehicular traffic consequences of population growth and increased density.

In consideration of these reasons, the sidewalk requirements below are aimed at creating a safe and convenient sidewalk network along the streets, corridors and centers identified in Nashville's General Plan (2015):

Nashville Next, Nashville's Strategic Transit Plan (2016): nMotion, and Nashville's Strategic Plan for Sidewalks and Bikeways (2017): WalknBike, where the impact of Nashville's growth is greatest.

These provisions are not intended to and shall not decrease the allowable floor area ratio for development.

A. Applicability.

1. Multi-family or non-residential development or redevelopment. All provisions of this section shall apply to the development or redevelopment of multi-family or nonresidential property when the property is located within the urban services district, or within a center designated in the general plan, or any of the property frontage is within a quarter-mile of the boundary of a center designated in the general plan, or the property is on a street in the major and collector street plan. Properties on the opposite side of navigable waterways or controlled access highways from a center designated in the general plan are not subject to this provision. For the purposes of this subsection, there shall be a presumption that the current appraised value of all structures on the lot is that established by the office of the metropolitan tax assessor. Development or redevelopment of multi-family or nonresidential property shall include one of more of the following:

a. Construction of a new structure on a vacant lot, including lots on which all structures have been or are planned to be demolished; or

b. The cost of any one renovation equal to or greater than fifty percent of the current appraised value of all structures on the lot, or the value of multiple renovations during any five-year period equal to or greater than seventy-five percent of the current appraised value of all structures on the lot; or

c. The cost of any one expansion equal to or greater than twenty-five percent of the current appraised value of all structures on the lot, or the value of multiple expansions during any five-year period equal to or greater than fifty percent of the current appraised value of all structures on the lot; or

d. The total building square footage of any one expansion is equal to or greater than twenty-five percent of the total square footage of all structures on the lot, or the total building square footage of multiple expansions during any five-year period is equal to or greater than fifty percent of the total square footage of all the structures on the lot.

2. Single-family or two-family construction. All provisions of this section shall apply to the construction of new single-family or attached or detached two-family structure(s) when the property is within the Urban Zoning Overlay, or within a center designated in the general plan, or any of the property frontage is within a quarter-mile of the boundary of a center designated in the general plan, or the property is on a street in the major and collector street plan in the urban services district (arterial and collector streets). Properties on the opposite side of navigable waterways or controlled access highways from a center designated in the general plan are not subject to this provision.

3. Waiver requests for all development types. Notification of a waiver request shall be sent to the appropriate district councilmember, by way of the

metropolitan council office, by the metropolitan department of codes administration. Building permit(s) shall not be issued until at least five business days from the date notification was sent to the metropolitan council office.

The zoning administrator may waive, in whole or in part, the requirements of this section upon request by the property owner or its agent under the following circumstances:

a. Where there is an existing substandard sidewalk, insufficient right-of-way, existing physical features on the property such as utilities, a ditch or drainage ditch, historic wall(s) or stone wall(s), tree(s), steep topography, or other hardship, the zoning administrator may approve an alternative design, or eliminate the sidewalk requirement in whole or in part if it is determined that a new sidewalk would not further the goal of extending or completing a sidewalk network. In addition to the executive director of the planning department, the zoning administrator shall consult with the director of public works and the director of water services, or their designees, prior to making any final determination.

b. In unique situations where a public sidewalk is required by subsection 17.20.120 A.1. or A.2. and installation is required by subsection C of this section, the zoning administrator may allow the building permit applicant to make the in-lieu contribution for all or a portion of the street frontage(s) as an alternative to construction. In addition to the executive director of the planning department, the zoning administrator shall consult with the director of public works and the director of water services, or their designees, prior to making any final determination. This provision shall be limited to unique situations that are not typical.

c. For properties eligible for public incentives for affordable housing from the metropolitan government, where the appropriately designated metropolitan government department has provided the property owner with a letter indicating that said property or properties will be utilizing public funds for land or construction of the structure, the zoning administrator may waive the requirements of Section 17.20.120 A., C., and/or D., or, rather than waive the sidewalk requirements, the zoning administrator may only require sidewalks at key locations if recommended by the executive director of the planning department, or his or her designee.

d. Where reconstruction is required due to circumstances beyond the control of the property owner, including, but not limited to, natural disaster, fire, or accident, the zoning administrator may waive the requirement for new sidewalk construction.

e. For properties within Historic Zoning Overlay Districts, where new sidewalks would be detrimental to the historic nature of the street, and the waiver has been recommended by the executive director of the metropolitan historical commission, or his or her designee, the zoning administrator may waive the requirement for new sidewalk construction.

f. Where a greenway exists or is reasonably expected to be constructed within six years that would provide similar connectivity, and the waiver has been recommended by the executive director of the metropolitan planning department, or his or her designee, the zoning administrator may waive the requirement for new sidewalk construction.

g. For properties situated on corner lots in R and RS zoned districts, where new construction of sidewalks is determined to be inappropriate, the zoning administrator may permit alternative requirements. The zoning administrator shall consider the amount of street frontage and classification of fronting streets when making a determination. In addition to the executive director of the planning department, the zoning administrator shall consult with the director of public works and the director of water services, or their designees, prior to making any final determination.

B. On-Site Sidewalk Installation For Multi-Family and Nonresidential Development. A continuous, all-weather internal sidewalk network, constructed to a minimum width of five feet, shall connect all pedestrian building entryways to parking areas and all public rights-of-way. Sidewalks shall be designed and constructed to be distinguishable from driving surfaces.

C. Public Sidewalk Installation. The provisions of this subsection apply to all property frontage, regardless of whether sidewalks are provided in public right-of-way or pedestrian easements.

1. Construction of new sidewalks is required along the entire property frontage under any one or more of the following conditions, unless the property abuts a sidewalk segment that the department of public works has funded and scheduled for construction:

a. When there is existing sidewalk in need of repair or replacement.

b. To extend the existing sidewalk, or sidewalk required as part of an existing final development plan for a specific plan zoning district or issued permit within any other zoning district, on an abutting development.

c. Existing sidewalk present on the same block face.

d. Multi-family or nonresidential properties within the Urban Zoning Overlay.

e. Multi-family or nonresidential properties along a street in the major and collector street plan.

2. Sidewalk Design Standards.

a. Sidewalk dimensions and required elements shall comply with the major and collector street plan or, for a street not in the major and collector street plan, the adopted standards of the metropolitan government. Design of sidewalks shall comply with approved standards established by the department of public works.

b. Obstructions are prohibited within the required pedestrian travelway, but may be located within a grass strip/green zone or frontage zone. Prior to the issuance of use and occupancy permits, existing obstructions shall be relocated outside of the required pedestrian travelway.

c. For multi-family and nonresidential development or redevelopment, street trees shall be required within the grass strip/green zone or frontage zone for any sidewalk constructed within a center designated in the general plan.

i. Trees shall be installed according to the provisions of the Metro Nashville Street Tree Specifications prepared and maintained by Metro Water Services in conjunction with Metro Public Works, Planning and Codes.

ii. Street trees shall be chosen from the Urban Forestry Recommended Tree List. Canopy trees shall be installed, except where conflicts with overhead electrical power lines exist. In those instances, understory trees may be substituted.

iii. The owner of the property frontage along which the street trees are installed shall maintain the trees installed per this title according to the provisions of the Metro Nashville Street Tree Specifications. The owner of the property frontage shall execute and record a restrictive covenant agreeing to these maintenance responsibilities.

iv. Required street trees shall be depicted on a landscape plan, which shall be submitted with construction drawings for the sidewalks. The landscape plan and specifications shall be prepared by, or under the direction of, and bear the seal of a professional landscape architect registered in Tennessee.

v. Trees installed pursuant to this section shall be eligible for credit toward the tree density required by Chapter 17.28 of this title.

D. Contribution to the fund for the pedestrian benefit zone as an alternative to sidewalk installation.

1. When a public sidewalk is required by subsection A, but installation is not required by subsection C of this section, the building permit applicant may make a financial contribution to the fund for the pedestrian benefit zone in lieu of construction. The value of the contribution shall be the average linear foot sidewalk project cost, including new and repair projects, determined by July 1 of each year by the department of public works' review of sidewalk projects contracted for or constructed by the metropolitan government. The contribution in-lieu of construction shall be no more than three percent of the total construction value of the permit.

2. Any such contributions received by the metropolitan government shall be assigned and designated for implementation of the strategic plan for sidewalks and bikeways, as approved by the planning commission. The applicant's payment shall be allocated within ten years of receipt of the payment within the same pedestrian benefit zone as the property to be developed; otherwise, the payment shall be refunded to the building permit applicant.

3. Contribution to the pedestrian network as an alternative to sidewalk installation required under this section shall be received by the department of public works, and written confirmation of the contribution shall be sent to the department of codes administration prior to the issuance of a building permit.

E. Dedication of Right-of-Way and Easements Required. Dedication of right-of-way and/or public pedestrian easement is required to permit present or future installation of a public sidewalk built to the current standards of the metropolitan government.

F. Improvements required or elected on public rights-of-way and/or public pedestrian easements under subsection C of this section shall be reviewed for compliance by the department of public works. No building permit shall be issued by the department of codes administration until the department of public works has released the building permit. Prior to the department of codes administration authorizing final use and occupancy, the department of public works shall inspect and approve the sidewalk improvements in the public rights-of-way and/or public pedestrian easements. (Ord. BL2022-1122 § 5, 2022; Ord. BL2020-288 § 1, 2020; Ord. BL2019-1659 § 1, 2019; Ord. BL2016-493 § 1, 2017; Ord. BL2004-491 § 1, 2005; Amdt. 1 with Ord. BL2004-289 § 1, 2004; Amdt. 1 with Ord. BL2000-479 § 1, 2000; Ord. 96-555 § 5.3(J), 1997)

Editor's note—Section 17.20.120 is no longer enforced and is subject to a permanent injunction. See Agreed Entry of Judgment and Injunction entered 9/22/23 in *Knight, et al., v. Metropolitan Government,* U.S. District Court, M.D. Tenn., Case No. 3:20-cv-00922.

17.20.125 Right to appeal and seek variances.

The provisions of Section 17.20.120 may be varied or interpretations appealed in conformance with Chapter 17.40, Administration and Procedures. The board of zoning appeals may require a contribution to the pedestrian network consistent with subsection 17.20.120.D., an alternative sidewalk design, or other appropriate mitiga-

tion for the loss of the public improvement as a condition to a variance. The board of zoning appeals shall not accept an application until the zoning administrator has made a determination on the requirement as set forth in this chapter. (Ord. BL2019-1659 § 2, 2019; Ord. BL2016-493 § 2, 2017; Amdt. 1 with Ord. BL2004-289 § 2, 2004)

17.20.130 Loading space requirements.

A. The number of loading spaces required for each land use classification of the Zoning Code is established in Table 17.20.130

Table 17.20.130
NUMBER OF LOADING SPACES REQUIRED

Land Use	Gross Floor Area (Square Feet)	Loading Spaces (10 by 25 feet)	Loading Spaces (10 by 50 feet)
Institutional, educational, medical, communication, office	10,000—99,999	1	0
	100,000—149,999	0	1
	150,000 and over	0	2
Commercial, recreational and entertainment	2,000—9,999	1	0
	10,000—25,000	0	1
	Over 25,000	0	2
Industrial, transportation, utility, waste management	0—1,999	1	0
	2,000—10,000	0	1
	Over 10,000	0	2
Other uses	Based on a recommendation from the traffic and parking engineer subject to approval by the zoning administrator.		

B. Size of Loading Spaces Provided. The minimum dimensions of loading spaces, open or enclosed, shall be twelve feet in width by fifty-five feet in length, with a minimum vertical clearance of fifteen feet. Where tractor-trailer units will be using the facility, the minimum length shall be sixty-five feet.

C. Paving Standards. All open loading spaces shall be surfaced with concrete, or other hard-surfaced dustless materials, and shall be constructed to provide for adequate drainage.

D. Use of Loading Spaces. Required loading spaces and associated aisles and maneuvering areas shall be used for vehicle loading/unloading only.

E. Layout. All loading spaces shall comply with the following design requirements.

1. No loading space shall be located within the right-of-way of a public street. Any loading space or door shall be set back far enough from the right-of-way so that no portion of the right-of-way is occupied by trucks or other vehicles while loading or unloading.

2. The location of the loading space shall not interfere with the free circulation of vehicles in the off-street parking area. Where loading spaces are directly adjacent to or integrated with an off-street parking lot, the metropolitan traffic engineer may require installation of physical barriers or other means of separating loading spaces from parking areas and pedestrian traffic.

3. No loading space shall be located so as to block access by emergency vehicles. (Ord. 99-1643 §§ 1, 2, 1999; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 5.3(K), 1997)

17.20.135 Bicycle parking.

A. Space Required. Bicycle parking shall be provided for all principal uses located within the Urban Zoning Overlay district or an Urban Design Overlay district.

1. Bicycle parking shall be required as provided in Table 17.20.135 for any new building or structure and any addition or enlargement of an existing building of more than fifty percent of the gross floor area. For additions or enlargements, the bicycle parking requirement shall apply only to the additional building floor area.

B. Unless otherwise expressly stated in Table 17.20.135, a minimum of two publicly available bicycle spaces shall be provided for every use. Unless specified in Table 17.20.135, residential uses shall not be required to provide bicycle parking.

C. One vehicle parking space required by Section 17.20.030 may be used as a space for providing bicycle parking.

D. Where subsurface conditions or below-ground infrastructure make bicycle parking difficult or infeasible, the zoning administrator, based on a recommendation from the planning department, may reduce or waive the

required bicycle parking and/or may approve different design and location standards for required bicycle parking spaces.

E. Required bicycle parking spaces design and location standards shall meet the recommendations of the Association of Pedestrian and Bicycle Professionals (APBP) Bicycle Parking Guidelines.

1. The required publicly available bicycle parking spaces shall be located in a convenient and visible area within fifty feet of a principal entrance or other approved location by the zoning administrator with guidance from the department of public works and shall permit the locking of the bicycle frame and one wheel to a rack or fixture and shall support a bicycle in a stable position without damage to the wheels, frame or components.

2. Required bicycle parking spaces shall not be located on a residential balcony.

Table 17.20.135
BICYCLE PARKING REQUIREMENTS

Use	Minimum Bicycle Parking Requirement
Residential, Multi-Family	2 spaces or 1 space per 4 dwelling units, whichever is greater, provided the requirement for the residential, multi-family use shall not exceed 50 spaces. 2 of the required spaces or 20% of the total spaces, whichever is greater, shall be publicly available
Boardinghouse	2 spaces or 1 space per 4 rental units, whichever is greater, provided the requirement shall not exceed 20 spaces
Community Education	1 space per classroom
General Office	2 publicly available spaces per establishment or 1 space per 15,000 square feet, whichever is greater
Restaurant, fast food	4 publicly available spaces per establishment
Restaurant, full-service	4 publicly available spaces per establishment
Retail	2 publicly available spaces per establishment or 1 space per 5,000 square feet, whichever is greater

Fractions: Any fraction less than one-half shall be disregarded and any fraction of one-half or more shall be rounded upward to the next highest full number. (Ord. BL2014-714 § 1, 2014)

Article III. Access Management

17.20.140 Multimodal transportation analysis.

A. The purpose of a multimodal transportation analysis is to evaluate the impact of a proposed development on the safety, operations, and condition of the adjacent transportation network, and to identify what transportation mitigations, if any, are necessary to offset the impact caused by additional trips generated by the proposed development.

1. Elements of the adjacent transportation network to be evaluated may include intersection operational performance, multimodal connectivity, and safety of the transportation network for all road users.

2. Transportation mitigations may include, but are not limited to, the provision of roadway traffic operations and capacity facilities; modifications to the roadway network that increase safety; micromobility enhancements; the addition or enhancement of bicycle, pedestrian, and transit facilities; and/or development of programs to encourage an appropriate mix of travel modes and complete streets where appropriate.

B. Requirements for a Multimodal Transportation Analysis. A multimodal transportation analysis shall be required by the planning department for applications to the metropolitan planning commission (MPC) or the Nashville Department of Transportation and Multimodal Infrastructure (NDOT) for all other development which contains:

1. Residential developments with more than seventy-five dwelling units; or

2. Nonresidential developments of more than fifty thousand square feet; or

3. Combinations of residential and nonresidential uses expected to generate seven hundred fifty trips or more per day, or one hundred or more peak-hour trips; or

4. In the opinion of NDOT, a multimodal transportation analysis is needed for developments not meeting the above thresholds.

NDOT shall set requirements for the level of analysis, modes of transportation considered, and analysis methodology for applicants meeting any of the above thresholds.

C. Levels of Multimodal Transportation Analysis Required.

1. Level 1. A level 1 multimodal transportation analysis is required for smaller scale projects that are not anticipated to have a significant impact on the overall transportation system but will have impacts at the site access.

a. A level 1 multimodal transportation analysis shall be required in cases where the proposed development will create a through connection between collector roadways and/or roadways of greater functional classification based on the Major and Collector Street Plan.

b. The project access points to public roadways, public alleys, private driveways, and joint access easements will be evaluated, and this includes those loca-

tions that the planning department or NDOT determines are necessary to provide for an adequate review of the proposed project's impact.

c. The multimodal infrastructure and the safety of all modes of transportation in the vicinity of the project will also be analyzed as part of a level 1 analysis.

2. Level 2. A level 2 multimodal transportation analysis is required for larger scale development projects that are anticipated to have a significant transportation impact on the overall transportation system. A level 2 multimodal transportation analysis will evaluate impacts at site access points and appropriate nearby intersections as well as impacts to the multimodal transportation network and safety for all modes of transportation.

a. A level 2 analysis will include an analysis of the project's access points, all roadways serving the project; and, all intersections up to the first collector roadway, or the first roadway of higher functional classification, and the intersections of these roadways with arterial roadways based on the major and collector street plan.

b. Elements that may be considered by NDOT during review of a level 2 multimodal transportation analysis request include parking supply, existing or planned multimodal infrastructure adjacent to the development, proximity to transit, population density of the area adjacent to the development, and traffic congestion.

c. The study area includes intersections and transportation facilities that the planning department and NDOT determine are necessary to provide for an adequate review of the proposed project's impacts.

D. Rezoning Analysis. The purpose of a rezoning analysis is to analyze the capacity of the existing transportation system to accommodate potential new development in the absence of mitigation measures.

1. A rezoning analysis compares the typical and maximum potential trip generation of representative uses permitted in the existing zoning with the typical and maximum representative uses permitted under the requested zoning or through design-based districts.

2. Completing a rezoning analysis does not preclude the need to complete a more thorough multimodal transportation analysis upon submission of development plans for the subject property(s) and/or requests for the issuance of permits for construction.

3. Specific mitigation measures will be identified through the detailed multimodal transportation analysis process.

E. Multimodal Transportation Analysis Scoping. Upon determination that a new development meets the threshold for a multimodal transportation analysis, the applicant must contact NDOT and submit a Scoping Evaluation Form for review. The purpose of the form is to provide NDOT with basic information about a new development, set analysis parameters, and guide the applicant through a preliminary assessment of the transportation network within the study area. NDOT shall review and provide comments or approval of a submitted scoping document within ten business days of submittal.

F. Phased Development.

1. If a development is phased, the sequence and timing of a development shall be incorporated into the multimodal transportation analysis.

2. An overall multimodal transportation analysis may be required with additional analysis for individual phases of construction.

3. Completing a multimodal transportation analysis for one phase of development does not preclude the need to complete additional analysis upon submission of development plans for the subject property(s) and/or requests for the issuance of permits for construction.

G. Waiver of a Multimodal Transportation Analysis. A property owner or their representative who demonstrates that a development will not have a significant impact on the transportation system may request a waiver of a multimodal transportation analysis.

1. A request to waive a multimodal transportation analysis shall be made by a property owner or their representative in writing to NDOT and for applications to the planning commission, the planning department. Sufficient documentation shall be included that supports the waiver request.

2. A copy of the request to waive a multimodal transportation analysis shall concurrently be sent by the property owner or their representative to the member(s) of the metropolitan council in whose district(s) the development is located.

3. NDOT will make a decision on the waiver request within fifteen business days, and for applications to the planning commission, will consider a recommendation from the planning department.

H. Approval of Multimodal Transportation Analysis.

1. If a multimodal transportation analysis is required per Subsection B above, the multimodal transportation analysis and transportation mitigation strategies should be reviewed and approved by NDOT prior to the planning commission review. The planning department may recommend deferral as a staff recommendation to the planning commission for applications without an approved multimodal transportation analysis.

2. The multimodal transportation analysis shall be approved by NDOT and, for applications to the planning commission, the planning department, with all applicable performance requirements incorporated into any site and building plans.

3. NDOT shall review and provide comments or approval of a submitted multimodal transportation analysis within twenty business days of submittal.

I. Applicability of a Multimodal Transportation Analysis. A previously approved multimodal transportation analysis may require revision if the following criteria are met:

1. Zoning approval or permit approval not obtained within sixty months (five years) of multimodal transportation analysis approval; or

2. Changes in access points from proposed development are made from site plan submitted as part of approved multimodal transportation analysis; or

3. Increase in daily or peak hour trips resulting from a change in proposed land use types or intensities.

4. Developments meeting the above criteria shall revise and resubmit a multimodal transportation analysis. If a multimodal transportation analysis is required for a submitted planning application, the planning department may recommend deferral as a staff recommendation to the planning commission for applications with a multimodal transportation analysis meeting any of the above criteria without approval from NDOT.

J. Implementation of Multimodal Transportation Analysis Recommendations.

1. The multimodal transportation analysis may consider the capital improvements budget and improvements for which council has adopted a resolution appropriating funds.

2. Any required improvements which have not been funded or otherwise completed by the metropolitan government shall be completed by the developer prior to the issuance of a use and occupancy permit by the zoning administrator.

3. When it can be demonstrated that a development will only partially contribute to the need for additional off-site improvements, NDOT or planning department (as applicable) may require a pro-rata contribution.

4. Prior to the issuance of a ROW permit and per Section 13.20.050 of this Code, the applicant's contractor shall be required to obtain a performance bond executed by the contractor and its surety or sureties, guaranteeing the execution of transportation infrastructure follows NDOT requirements and the payment of all legal debts pertaining to the performance of the work. Surety(ies) shall be authorized to do business in the State of Tennessee and be listed on the United States Department of the Treasury Financial Management Service list of approved bonding companies. (Ord. BL2023-2010 § 1, 2023; Ord. BL2017-721 § 1, 2017; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 5.4(A), 1997)

17.20.150 Protection of residential areas.

In order to minimize deterioration and destabilization of residential areas, access for nonresidential properties which abut residential-zoned areas shall be designed so as to minimize the intrusion of nonlocal traffic onto residential local and minor local streets. (Ord. 96-555 § 5.4(B), 1997)

17.20.160 Access from nonarterial streets.

Driveways providing vehicular access from streets which function and/or are designated by the planning commission as nonarterial streets shall comply with the following provisions.

A. Driveway Location. The following provisions apply to the location of driveways providing access to and from nonarterial streets.

1. A driveway providing access to a single-family or two-family lot from a minor local or local street shall be located at least fifteen feet from a street intersection; a driveway accessing a collector street shall be at least fifty feet from an intersection.

2. A driveway providing access to a use other than a single-family or two-family dwelling shall be located at least fifty feet from a street intersection. A driveway shall be at least one hundred feet from the intersection of a collector street.

3. A driveway other than for a single-family or two-family dwelling shall be located at least thirty feet from another driveway.

B. Deviations. The metropolitan traffic engineer may authorize deviations from the provisions of this section, based upon a demonstration by the applicant that improvement of the property is impractical under the standards of this section and a determination that granting the requested deviation will not be contrary to public health, safety and welfare. (Ord. 96-555 § 5.4(c), 1997)

17.20.170 Access from arterial streets.

Driveways providing vehicular access from streets which are designated by the planning commission on the adopted major street plan as arterial streets shall comply with the following provisions.

A. Number of Driveways. Table 17.20.170 sets forth the maximum number of driveways based on the amount of lot frontage along an arterial classification of street. Driveways shall be a minimum of thirty feet apart. The traffic engineer may require a greater minimum distance between driveways if it is in the best interest of public safety. When appropriate, all new driveways shall be placed directly across from driveways on the opposite side of the street to enhance traffic flow and public safety.

B. Driveway Separation from Intersecting Streets. To protect the safety of the motoring public, the following standards shall apply:

1. Along the frontage of an arterial street, no driveway ramp shall be located within one hundred eighty-five feet of a street intersection.

2. Along any classification of street, no driveway ramp shall be located within two hundred fifty feet of a controlled access highway ramp.

3. A platted lot existing on the effective date of the ordinance codified in this title, which does not have sufficient street frontage to satisfy the separation requirements of this section, may be granted one driveway ramp provided that it is located as far from the intersection as is reasonably feasible and does not create a hazard to the motoring public.

C. Building Permit Restrictions. If an undeveloped lot or unplatted parcel has less street frontage than the minimum spacing required in subsections A and B of this section and is adjacent to another lot under common ownership on the effective date of the ordinance codified in this title, establishment of a joint access driveway may be required by the traffic engineer.

D. Alternative Access. Where the configuration of properties located on arterial streets precludes spacing of driveway access in accordance with the requirements of this section due to topography or prior site development layout, the metropolitan traffic engineer shall be authorized to require joint access driveways or cross access corridors (See Figure 17.20.170). The following provisions set forth standards for joint use driveways and cross access corridors for reduced spacing situations.

Table 17.20.170
MAXIMUM NUMBER OF DRIVEWAYS

Lot Frontage	Maximum Number of Driveways
Up to 150 feet	1
150 to 299 feet	2
Each additional 300 feet	1

1. Joint Use Driveways. Wherever feasible, the metropolitan traffic engineer may require the establishment of a joint use driveway serving two or more abutting properties. If a proposed development abuts an existing development which contains an existing joint access driveway, the vehicular circulation of the proposed development shall be designed to connect to the abutting access and circulation areas. If a proposed development abuts an existing undeveloped property, the vehicular circulation of the proposed development will contain a joint access driveway which is designed to connect to the abutting property at a later date.

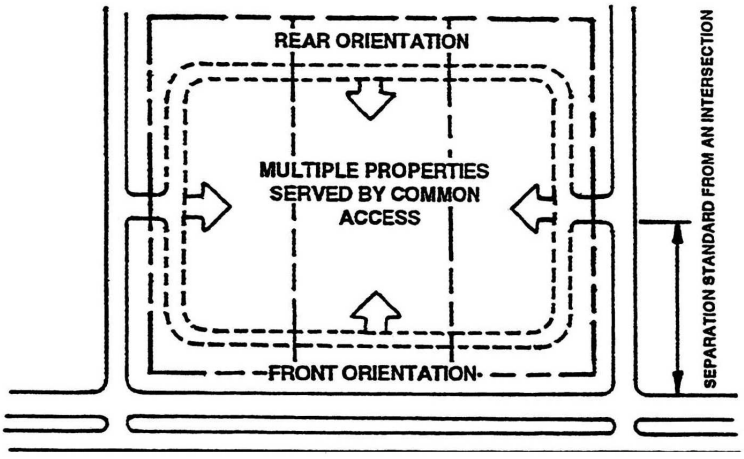
2. Cross Access Corridors. The metropolitan traffic engineer shall be authorized to designate cross access corridors on properties adjacent to arterials. The developments within the affected cross access area shall be designed so as to provide for mutually coordinated parking, access and circulation systems. Such designation shall be referenced on a plat of subdivision. Additionally, if a development within the cross access area abuts an existing developed property which is not in the cross access area, but has an abutting joint access driveway, it shall be designed to tie into the abutting access and circulation system.

3. Recording Easements. Wherever cross access corridors or joint use driveways are provided in accordance with this section, the site plan shall not be approved unless the plan grants an easement for cross access to and from abutting properties. Such easement shall be recorded by the applicant in the public records of Metropolitan Nashville and Davidson County and constitute a covenant running with the land.

4. Closing of Interim Driveways. Wherever a permanent joint use driveway or cross access easement is constructed in accordance with this section, all preceding interim driveways shall be closed and eliminated. In the case of a joint use driveway, the property owner shall enter into a written agreement with the metropolitan government, recorded in the public records of Metropolitan Nashville and Davidson County and running with the land, that existing driveways shall be closed and eliminated after the construction of both sides of a joint use driveway.

5. Where Unified Access and Circulation is Not Practical. The metropolitan traffic engineer shall be authorized to waive the requirements of this subsection when abutting properties have been developed in such a manner that it is clearly impractical to create a unified access and circulation system with all or part of the affected areas. (Ord. 96-555 § 5.4(D), 1997)

Figure 17.20.170
JOINT USE DRIVEWAY AND CROSS ACCESS CORRIDOR



17.20.180 Visibility.

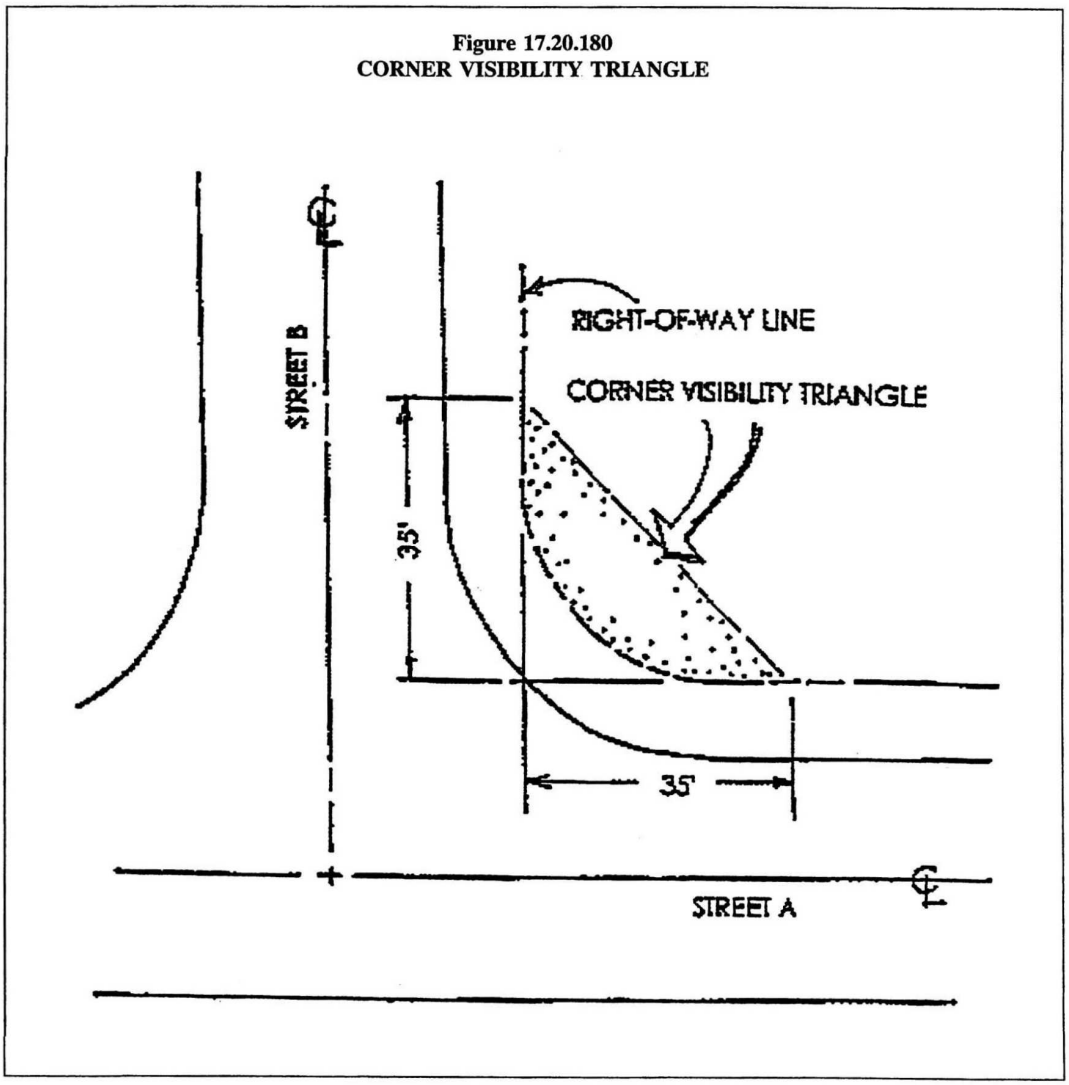
In order to safely accommodate vehicular movements to and from public streets, the sight distance and visibility provisions in the traffic and parking code and the following provisions shall be required.

A. At street intersections nothing shall be erected that will obstruct vision at any point above the center line grades of the intersecting streets within the triangular area formed by the right-of-way lines and a straight line joining the right-of-way lines at points which are thirty-five feet distant from the intersection of the right-of-way lines and measured along such right-of-way lines. Development within the urban zoning overlay district and in the DTC, CF, CF-NS, MUI, and MUI-NS districts shall be exempt from this provision. (See Figure 17.20.180)

B. In all zoning districts, no fence, wall, hedge, or other planting or structure shall be allowed on private property that will obstruct vision at any point where private driveways intersect a public street in such a manner as to interfere with traffic visibility of any driver using an authorized driveway, alley or roadway.

(Ord. BL2019-111 § 1(Exh. A, § 31), 2020; Ord. BL2000-364 § 1 (part), 2000; Ord. 96-555 § 5.4(E), 1997)

Figure 17.20.180
CORNER VISIBILITY TRIANGLE



17.20.190 Measurement of distances.

For the purposes of this article, distances shall be measured in the following manner.

A. Distance Between Driveways. Distances between driveways shall be measured along the right-of-way line from the nearest points of intersection of the driveways with the right-of-way line. In the event that the curb return of a driveway begins outside of the right-of-way, the point of intersection of the extension of the driveway curb or edge shall be used for measurement purposes.

B. Distance from Intersection. The distance from street intersections shall be measured from the nearest intersection of the existing right-of-way lines or extensions thereof. For streets designated to be widened at a future time by the adopted major street plan, measurement shall be made from the ultimate right-of-way.

C. Distance from an Interstate Ramp. The distance from interstate ramps shall be measured from that point where the centerline of the right-of-way for the interstate ramp intersects the right-of-way for the arterial street serving the lot. (Ord. 96-555 § 5.4(F), 1997)

Chapter 17.24

LANDSCAPING, BUFFERING AND TREE REQUIREMENTS*

Sections:

Article I. General Provisions

17.24.010	**Purpose and intent.**
17.24.020	**Landscape plan required.**
17.24.030	**Plant standards.**
17.24.040	**Spacing standards.**
17.24.050	**Exceptions.**
17.24.060	**Special screening requirements.**
17.24.070	**Scenic landscape easements.**
17.24.075	**Plans for street trees and streetscape.**
17.24.080	**Maintenance of required landscape materials.**

Article II. Parking Area Screening and Landscaping

17.24.130	**Purpose and intent.**
17.24.140	**Applicability.**
17.24.150	**Perimeter screening requirements.**
17.24.160	**Interior planting requirements.**
17.24.170	**Nonconforming parking areas.**

Article III. Landscape Buffer Yard Requirements

17.24.180	**Purpose and intent.**
17.24.190	**Exemptions.**
17.24.200	**Determination of landscape buffer yard requirements.**
17.24.210	**Landscape buffer yard design and materials.**
17.24.220	**Other uses within landscape buffer yards.**
17.24.230	**Table of landscape buffer yard requirements.**
17.24.240	**Landscape buffer yard standards.**

Article I. General Provisions

17.24.010 Purpose and intent.

The general purpose of this chapter is to set standards for landscaping, buffering, and tree requirements in order to implement the precepts of the general plan and the associated subarea plans, as well as the requirements of the various zone districts set out previously, including properties zoned DTC district as set forth in Chapter 17.37. This chapter further establishes standards for screening and landscaping parking areas to reduce their impact on adjacent properties and public thoroughfares, as well as to mitigate the environmental impacts of large areas of unbroken pavement; establishes standards for buffering between different zone districts or selected land uses to mitigate the results of differing activities; and sets standards for plant materials, maintenance of required plants, planning in scenic easements and standards for the screening of unsightly areas. (Ord. BL2022-1122 § 6, 2022; Ord. BL2018-1416 § 4, 2019; Ord. BL2009-586 § 1(Exh. A, § 37), 2010; Ord. 96-555 § 6.1, 1997)

17.24.020 Landscape plan required.

A landscape plan shall accompany any application for final site plan approval under Section 17.40.170, unless exempted by Section 17.24.050, Exceptions. The plan shall show location, size, spacing, species, form and quality of all existing and proposed materials intended to fulfill the requirements of this chapter. The plan shall also show topography, location of all utilities, and either an under-ground sprinkler system or hose bib attachments. The plans and specifications submitted pursuant to this section shall be prepared by, or under the direction of, and bear the seal of a professional landscape architect registered in Tennessee for all developments which include five thousand square feet or more of permanent structures. Plans and specifications submitted pursuant to this section for developments with less than five thousand square feet of permanent structures shall be exempt from the landscape architect seal requirement. (Ord. BL2018-1416 § 5, 2019; Ord. BL2008-328 § 5, 2009; Ord. 2001-750 § 1, 2001; Ord. 96-555 § 6.2(A), 1997)

17.24.030 Plant standards.

A. Minimum Quality and Size Standards.

1. Newly planted landscape plant materials shall conform to the latest version of the American Standard for Nursery Stock, ANSI Z60.1-2014.

2. Type 1, 2, and 3 Trees, shall meet the planting and size requirements as defined in ANSI Z60.1.

a. Canopy trees shall be a minimum of two inches in caliper at the time of planting, as determined in the American Standard for Nursery Stock, ANSI Z60.1-2004.

b. Understory trees shall have a caliper of two inches in caliper at time of planting, as determined in the American Standard for Nursery Stock, ANSI Z60.1. For

*Editor's note—Ord. BL2018-1416, § 4, adopted July 17, 2019, amended the title of Ch. 17.24 to read as herein set out. Formerly, said chapter was entitled "Landscaping, Buffering and Tree Replacement."

multi-stem varieties caliper shall be determined by taking one-half of the caliper of the three largest required trunks.

c. Evergreen trees shall be a minimum of six feet in height and a minimum of two inches in caliper at the time of planting.

d. Except where required to be taller, shrubs shall be a minimum of eighteen inches in height above ground level at the time of planting and shall typically grow to a minimum height of thirty inches for perimeter shrubs and five to six feet for buffer shrubs within four years.

3. Plant material used to meet the requirements of this Code shall be selected from the Urban Forestry Recommended and Prohibited Tree and Shrub List, unless otherwise approved by the planning or codes departments, as applicable.

4. Plants listed on the current edition of the Invasive Exotic Pest Plants of Tennessee, as published by the Tennessee Exotic Pest Plant Council, shall not be planted nor credited toward the minimum requirements of this Code.

B. Plant Diversity.

1. To maintain forest health, engender climate adaptation, and provide protection against disease and blight, tree plantings shall meet the following requirements:

a. Tree diversity:

Number of Trees	Minimum Number of Different Genera in Roughly Equal Proportions
Less than 20	2 Genera
20—39	3 Genera
40 or more	4 Genera

i. Native species incorporation: Approximately fifty-one percent of the trees planted (excluding ground cover and shrubs) shall be native species of the Southeastern USA Plains Level II Ecoregion.

ii. Plantings required by adopted streetscape plans or sites located along an Arterial Boulevard as defined by the Major and Collector Street Plan may adjust diversity requirements as approved by planning or codes staff, as applicable.

C. Stabilization. Landscape planting areas shall be stabilized and maintained with seed, sod, ground covers, mulches, or other approved materials to prevent soil erosion and allow rainwater infiltration. When possible, native ground cover shall be utilized.

D. Planting in Easements.

1. Groundcover may be planted or installed within any utility or drainage easement. Trees and shrubs may require approval by the easement holder.

2. In areas that require canopy trees where overhead utilities prevent the use of canopy trees, understory trees may be substituted. Multi-stemmed understory trees may be used provided they meet the minimum size at time of planting.

E. Planting Near Light Poles and Transformers. Trees shall be a minimum of fifteen feet from light poles and transformers. Trees may be clustered or moved to a more appropriate location if light poles or transformers conflict with tree locations, as long as all other tree location requirements are met.

F. Planting Near Fire Hydrants. Tree locations near fire hydrants shall comply with the Fire Code, as applicable. Shrubs shall be a minimum of five feet from a fire hydrant. (Ord. BL2024-683 § 1, 2025; Ord. 2001-750 § 2 (part), 2001; Ord. 96-555 § 6.2(C), 1997)

17.24.040 Spacing standards.

Unless specific minimums or maximums are set out in the following articles, landscape plantings required under this chapter may appear to be irregularly planted and spaced at random. (Ord. 2001-750 § 2 (part), 2001; Ord. 96-555 § 6.2(D), 1997)

17.24.050 Exceptions.

The requirements of this chapter shall not apply to:

A. Improvements or repairs to interior and exterior features of existing structures, including the conversion of a non-residential building to residential use either in whole or in part, as provided by this title.

B. Construction previously authorized by a building permit, a final site plan of a planned unit development approved by the planning commission, or an approved subdivision construction plan, any one of which remains valid on the effective date of the ordinance codified in this title. Any development whose permit or approval expires shall not be exempt.

C. Reserved.

D. In the event of emergencies, which may include but are not limited to snow, ice and rain storms, tornadoes, floods, and similar natural disasters which cause excessive tree damage throughout the community, the mayor may invoke additional exceptions as necessary to deal with the emergency.

E. The interior planting requirements of Section 17.24.160 shall not apply to service loading areas or to tractor trailer staging, loading and parking areas. (Ord. BL2008-328 § 1, 2009; Ord. BL2004-492 § 4, 2005; Ord. 2001-750 § 2 (part), 2001; Ord. BL99-117 § 1 (part), 2000; Amdt. 1 (part), with Ord. 99-1754 § 5, 1999; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 6.2(B), 1997)

17.24.060 Special screening requirements.

Screening of unsightly areas shall be accomplished as follows:

A. Dumpsters and other trash receptacles for all structures other than single-family and two-family residences shall be screened by an enclosure from public streets and from properties which are zoned or policied for residential use. The following design standards shall apply:

1. Receptacles shall be placed on a concrete pad, constructed from steel reinforced concrete and a minimum of eight inches thick.

2. Enclosures shall consist of a fence or wall constructed of opaque-type materials, such as wood, masonry, or other permanent materials, which prevent direct visibility of the receptacle. Evergreen plants may be used in part to meet the requirement of opacity.

3. Enclosures shall be constructed to a minimum height of one foot higher than the height of the enclosed receptacle, or six feet in height, whichever is higher.

4. Enclosures shall be constructed in such a manner that all structural members, including braces, posts, poles, and other projections, are located within the interior of the enclosure.

5. Unless the service opening is oriented away from adjacent public streets and residential properties, enclosures shall have a service access gate meeting the following design standards:

a. Access gates shall be of sufficient size to remove the receptacle from the enclosure.

b. Access gates shall be constructed of opaque-type materials which prevent direct visibility of the receptacle.

c. Access gates shall be constructed with a latch to keep the access gate closed when the receptacle is not in use.

d. Access gates shall not open directly onto public streets or sidewalks.

6. Enclosures may have an additional side door for accessing the receptacle. This additional side door may be up to three feet in width and may be secured or unsecured.

7. Receptacles shall be located in the rear of the building or structure which they service. If a receptacle cannot be placed behind the building or structure it services, the location shall be determined by the department of codes administration.

8. Receptacles must remain readily accessible to the Nashville Fire Department.

9. When used as an alternative to traditional dumpsters or other trash receptacles, below grade (deep well) refuse collection and recycling systems shall be screened by a decorative wall, solid fence, or year-round landscaping. The wall, fence, or plantings must be of a height equal to or greater than the height of the refuse collection and recycling equipment being screened.

B. On sites which are developed at the time of adoption of the ordinance codified in this chapter which are subsequently upgraded, dumpsters shall be screened to meet the standards set out in this subsection if:

1. Any single expansion of the site increases the total building area by twenty-five percent or more;

2. Multiple expansions within a five-year period increase the total building area by twenty-five percent or more;

3. The value of any single expansion is more than twenty-five percent of the existing value of improvements;

4. The total value of all improvements increases by fifty percent or more as a result of multiple expansions over a five year period.

C. Landscape Buffer Yard Required for Double Frontage Lot. In cases where residential lots are developed with frontage and access to a street within the subdivision and the rear of the lot is oriented toward a public right-of-way, the rear of such double frontage lots shall be screened from the public right-of-way by a landscape buffer yard according to the following standards:

Street Type	Buffer Standard
Local street	Standard A
Collector street	Standard B
Arterial street	Standard C

D. Mechanical equipment, antennae or satellite dishes exceeding eighteen inches in diameter shall not be located within required landscape buffer yards or required front or side setbacks. Mechanical equipment or satellite dishes exceeding eighteen inches in diameter located atop a building shall be screened from all abutting public streets and residential properties by enclosure within the roof form of the building or a screen.

E. Parking areas servicing multifamily and non-residential uses which have ten or more parking spaces and are located adjacent to residentially zoned properties with-out an intervening street shall be screened by a permanent opaque fence or wall at least six feet in height, in addition to the parking area perimeter landscaping or landscape buffer yards required.

F. The exterior service area of a commercial or industrial building, if oriented toward a public street, shall be screened as follows:

1. When oriented to a minor local, local or collector street, screen with a Standard A landscape buffer yard.

2. When oriented to an arterial street on the adopted major street plan, screen with a Standard B landscape buffer yard.

G. In addition to the requirements imposed by Sections 17.24.130 through 17.24.170 and Sections 17.24.180 through 17.24.240 of this chapter, areas used for the temporary or permanent storage of inoperable or damaged vehicles shall be screened from properties zoned residential and from public streets by means of an opaque fence or wall not less than six feet in height.

H. Limitation on Outdoor Storage in all Shopping Center and Mixed-Use Districts. In all shopping center and mixed-use districts, outside display and sales shall be limited to the incidental display of goods for sale or rent by an establishment having activities that occur principally within a building on the same lot, or to the display of new or used vehicles (where permitted by the district).

I. Outdoor Recreational Facility. An outdoor recreational facility, including swimming pools, tennis or basket-ball courts (golf course fairways excepted), when located adjacent to property with a residential zoning classification, shall provide a Standard C landscape buffer yard to shield the adjacent property. (Ord. BL2020-405 § 1, 2020; Ord. BL2018-1316 § 1, 2018; Amdt. 1 with Ord. 2001-750 § 3, 2001; Ord. 99-1643 § 3, 1999; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 6.2(E), 1997)

17.24.070 Scenic landscape easements.

Property abutting a street designated a scenic arterial by the major street plan shall comply with the following requirements:

A. The area of a lot located within ten feet of the right-of-way of a designated scenic arterial shall be designated as a "scenic landscape easement" and shall be planted with a Standard A landscape buffer yard. Existing vegetation may be used, in part or in whole to meet this requirement.

B. No grading, cutting of trees or brush exceeding one inch in diameter, or disturbance of prominent natural features shall be performed within a scenic landscape easement except for minimal disturbance necessary to permit streets, driveways or utility corridors. Only those improvements allowed in a landscape buffer yard shall be permitted within the scenic arterial easement. (Ord. 96-555 § 6.2(F), 1997)

17.24.075 Plans for street trees and streetscape.

Upon creation of a plan for street trees and streetscape for a specific geographic area within Davidson County, the metropolitan planning commission shall adopt the plan.

A. Review and enforcement. Compliance with a street tree/streetscape plan shall be reviewed and enforced by the urban forester according to the provisions of this section. Where street trees required by an adopted plan are to be located within the public right-of-way, the urban forester shall consult with the director of public works and/or the director of water services, or their designees, in review and enforcement of the plan. A street tree/streetscape plan shall be designated as a layer in GIS and mapping systems, and all parcels affected by a street tree/streetscape plan shall be flagged on all permitting.

B. Applicability.

1. Multi-family or non-residential development or redevelopment. All provisions of this section shall apply to the development or redevelopment of multi-family or non-residential property which includes one or more of the following:

a. Construction of a new structure on a vacant lot, including lots on which all structures have been or are planning to be demolished; or

b. The cost of any one renovation equal to or greater than fifty percent of the current appraised value of all structures on the lot, or the value of multiple renovations during any five-year period equal to or greater than seventy-five percent of the current appraised value of all structures on the lot; or

c. The cost of any one expansion equal to or greater than twenty-five percent of the current appraised value of all structures on the lot, or the value of multiple renovations during any five-year period equal to or greater than fifty percent of the current appraised value of all structures on the lot; or

d. The total building square footage of any one expansion is equal to or greater than twenty-five percent of the total square footage of all structures on the lot, or the total building square footage of multiple expansions during any five-year period is equal to or greater than fifty percent of the total square footage of all the structures on the lot.

2. Single-family or two-family construction. All provisions of this section shall apply to the construction of new single-family or new attached or detached two-family structure(s) on a vacant lot, including lots on which all structures have been or are planned to be demolished.

C. Installation and maintenance.

1. Trees shall be installed according to the provisions of the Metro Nashville Street Tree Specifications prepared and maintained by Metro Water Services in conjunction with Metro Public Works, Planning and Codes.

2. The owner of the property frontage along with the street trees are installed shall maintain the trees installed per this title according to the provisions of the Metro Nashville Street Tree Specifications. The owner of the property frontage shall execute and record a restrictive covenant agreeing to these maintenance responsibilities.

3. Trees installed pursuant to this section shall be eligible for credit toward the tree density required by Section 17.28.065 Trees.

D. Modifications and amendments. The urban forester shall have the authority to grant minor modifications to the adopted street tree plan including, but not limited to, adjustments in spacing or planting location that do not alter the overall concept of the adopted street tree/streetscape plan. Minor modifications may be granted based on existing physical site conditions such as utilities, a ditch or drainage ditch, historic wall(s) or stone wall(s), existing trees, or steep topography. Modifications that alter the overall concept of the adopted plan shall be considered major and require amendment of the plan by the metro planning commission.

E. Waivers and compliance. The zoning administrator may waive, in whole or in part, the requirements of this section upon request by the property owner or its agent due to existing physical features on the property such as utilities, a ditch or drainage ditch, historic wall(s) or stone wall(s), existing trees, steep topography, or other hardship. In addition to the urban forester, the zoning administrator shall consult with the executive director of the planning department, or their designee, and where appropriate the director of public works and/or the director of water services, or their designees, prior to making any final determination.

F. Appeals to the board of zoning appeals. The provisions of this section may be varied or interpretations appealed in conformance with Chapter 17.40, Administration and Procedures. The board of zoning appeals may require a contribution to the tree bank, as provided for in Section 17.40.480 of this title, or other appropriate mitigation for the loss of the trees required by the street tree/streetscape plan as a condition of the variance. The board of zoning appeals shall not accept an application until the zoning administrator has made a determination on the requirement as set forth in this chapter. (Ord. BL2022-1122 § 7, 2022; Amdt. 1 to Ord. BL2021-619 § 1, 2021; Ord. BL2021-619 § 1, 2021)

17.24.080 Maintenance of required landscape materials.

The property owner shall maintain landscaping required by this chapter in accordance with the following standards:

A. Use of Required Landscape Area. No required landscape area shall be used for accessory structures, garbage or trash collection, parking, or any other functional use contrary to the intent and purpose of this article.

B. Watering. All required landscaping, excluding trees planted or preserved on residential property in accordance with Section 17.28.065.C of this title, shall be watered by one of the following methods:

1. An underground sprinkler system;

2. An outside hose attachment within one hundred feet of all landscaping.

C. Replacement of Dead Materials. The property owner shall replace required plants which die. Replacements shall be installed at the earliest possible time within a planting season, and replacements shall be as shown on the approved landscape plan. (Ord. BL2022-1122 § 8, 2022; Ord. BL2008-328 § 2, 2009; Ord. 2001-750 § 4, 5, 2001; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 6.2(G), 1997)

Article II. Parking Area Screening and Landscaping*

17.24.130 Purpose and intent.

The purpose of this article is to lessen the visual and environmental effects that large parking areas can have on the community through the use of minimum landscaping standards. To those ends, this article establishes the minimum standards by which parking areas will be screened from adjacent public streets or from adjacent properties. In addition, this article delineates standards for landscaping within the interiors of parking areas. (Ord. 96-555 § 6.4(A), 1997)

17.24.140 Applicability.

The following requirements are cumulative, not exclusive.

A. Perimeter Parking Area Landscaping Required. The perimeter parking area landscaping requirements of this article shall apply to all off-street parking facilities adjacent to a public street or to a property line which:

1. Have five or more parking spaces; or

2. Are larger than one thousand seven hundred fifty square feet in area.

Within the urban zoning overlay district, parking areas within the CF and CF-NS zoning districts shall be exempt from the side property line planting requirements of this article. Perimeter parking area landscaping may be waived along interior property lines for property located within an approved planned unit development (PUD) district or within a unified plat of subdivision if the planning commission finds that any potential negative impacts of the parking area will be mitigated through other means.

B. Interior Parking Area Landscaping Required. The interior parking area landscaping requirements of this article shall apply to all off-street parking facilities which:

1. Have ten or more parking spaces; or

2. Are over three thousand five hundred square feet in area.

Principal use parking areas located in the CF and CF-NS districts on properties with less than one hundred feet of public street frontage or with less than twelve thousand square feet in total area shall be exempt from the interior planting requirements of this title.

C. All trees planted or preserved to satisfy the requirements of this article shall count towards the tree density requirements of Article II.

D. Required parking area screening and landscaping shall not be permitted in utility or drainage easements unless approved by the affected utility and, if approved, the property owner shall execute and record a restrictive covenant agreeing to full replacement of plant materials which may be removed by the utility in the exercise of its rights within the easement. (Ord. BL2019-111 § 1(Exh. A, § 32), 2020; Ord. 2001-750 § 11, 2001; Ord. BL2000-364 § 1 (part), 2000; Ord. 96-555 § 6.4(B), 1997)

17.24.150 Perimeter screening requirements.

Unless supplanted by more stringent standards in Article IV of this chapter, Landscape Buffer Yard Requirements, the perimeters of parking lots shall be landscaped as follows (See Figure 17.24.150-1):

A. Parking Areas Adjacent to Public Streets. Parking areas adjacent to public streets shall be separated from the edge of the right-of-way by a perimeter landscape strip which shall be landscaped per the standards set out in subsection C of this section. The public right-of-way and areas reserved for future rights-of-way in compliance with the adopted major street plan shall not be used to satisfy the requirements of this article. Perimeter landscape strips shall be continuous and unbroken except for driveways or sidewalks required to access the parking area. No single driveway/sidewalk penetration shall exceed thirty-five feet.

1. Perimeter landscape strips adjacent to public streets with four or more travel lanes (as classified by the major street plan) shall be a minimum of ten feet in width, unless: (a) the strip includes a permanent finished wall no less than thirty inches in height; or (b) the required trees are planted in islands between the parking spaces. In such cases the perimeter landscape strip may be reduced to five feet in width. (See Figure 17.24.150-2)

2. Perimeter landscape strips adjacent to public streets with less than four travel lanes (as classified by the major street plan) shall be a minimum of five feet in width, unless: (a) the strip includes a permanent finished wall no less than thirty inches in height; or (b) the required trees are planted in islands between the parking spaces. In such cases the perimeter landscape strip may be reduced to two and one-half feet in width. (See Figure 17.24.150-2)

*Editor's note—Ord. BL2022-1122 § 10, passed May 17, 2022, repealed Art. II, §§ 17.24.090—17.24.120, and renumbered Arts. III and IV as Arts. II and III. The former Art. II pertained to tree protection and replacement and derived from Ord. 96-555 § 6.3(A)—(D), 1997, as amended. See the Ordinance List and Disposition Table for complete derivation. The user's attention is directed to § 17.28.065.

3. Permanent landscape strips which use walls or earthen berms are desirable for the reliability of the screening effect they provide. Berms shall not have slopes steeper than 2:1 (horizontal to vertical). Berms with slopes flatter than 4:1 may be stabilized with lawn grasses, and berms with slopes in the range 2:1 to 4:1 shall be stabilized by a continuous perennial plant groundcover which does not require mowing in order to maintain a neat appearance. The wall or combination of berm and perennial groundcover shall be a minimum of two and one-half feet in height.

B. Parking Areas Adjacent to Side Property Lines. A perimeter landscape strip shall separate a driveway or parking area from an adjacent side property line by one of the following standards: (a) a five-foot (minimum) wide planting strip shall be provided if required trees are to be planted within the strip; (b) a two and one-half foot (minimum) planting strip may be provided to accommodate shrubs if all required trees are planted within tree islands located adjacent to the property line; or (c) two adjacent properties may share equally in the establishment of a seven-foot (minimum) planting strip along the common property line. In instances where the common perimeter planting strip is part of plan for shared access, each owner may count the respective area contributed toward that common planting strip toward the interior planting requirements for the lot. All landscaping strips shall be planted to satisfy the planting requirements of subsection C of this section.

C. Landscape Materials. A minimum of one tree shall be preserved or planted for each fifty feet of parking area perimeter, or portion thereof; for principal use parking areas located with the DTC, and CF, and CF-NS zoning districts, street trees shall be installed at a rate of one tree per thirty feet of street frontage. Trees planted to meet this requirement shall measure a minimum of two inches in caliper, and six feet in height, as applicable for the type of material specified. The remaining area within the perimeter landscape strip which fronts on a street right-of-way shall be planted with one continuous row of evergreen shrubs which shall be expected to mature at a height not greater than two and one-half feet, except as modified for berms or walls. The remainder of the area within all perimeter strips not occupied by trees or shrubs shall be covered by organic or mineral mulches, other shrubs, groundcover plants or grassed lawns. The use of concrete, asphalt or other impervious surfaces shall be prohibited.

D. Corner Visibility. Trees and other landscaping required in the perimeter strip shall be maintained to assure unobstructed corner visibility pursuant to Section 17.20.180, Visibility.

E. Adjacent Parking Areas with Shared Access. Parking areas on adjacent properties, which are designed to share a common access from the public right-of-way and a vehicular travelway along their common property line shall be exempt from the requirement for a parking area perimeter landscape strip along their common property line, upon the recording of an easement agreement which provides for the mutual right of ingress and egress for both property owners. (See Figure 17.24.150-3)

Figure 17.24.150-1
PERIMETER LANDSCAPE STANDARDS

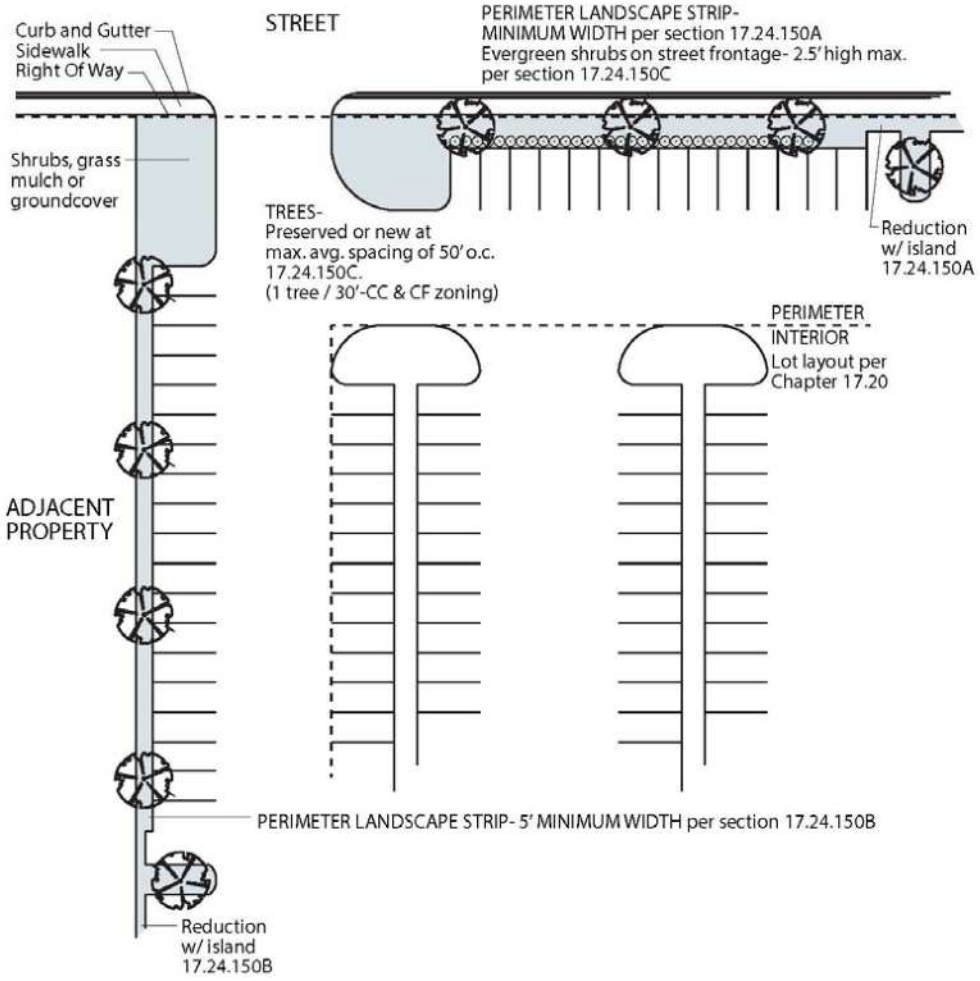
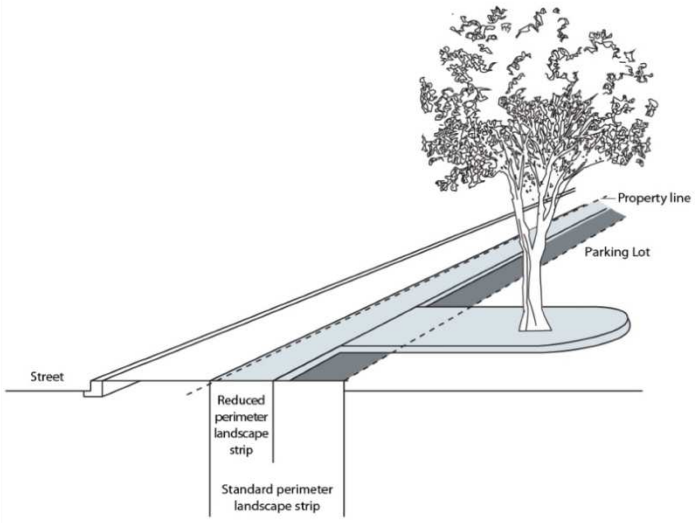
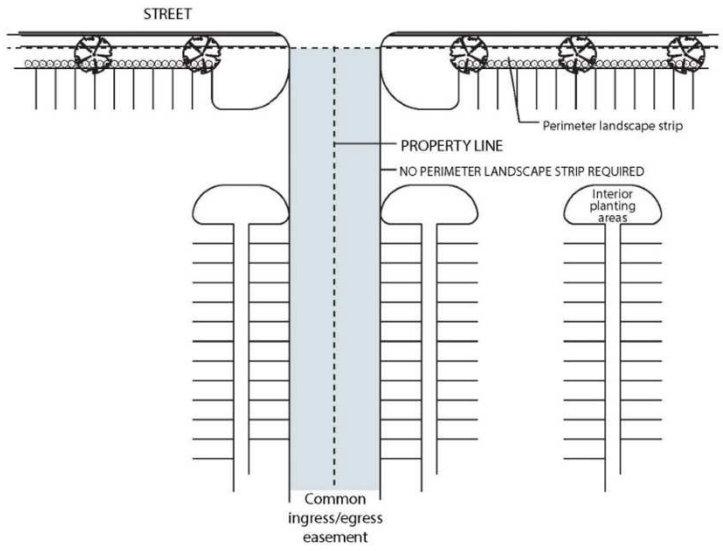


Figure 17.24.150-2
REDUCTION OF PERIMETER LANDSCAPE STRIP



The perimeter landscape strip may be reduced to half the standard depth if the required trees are planted in islands between parking spaces. 17.24.150A

Figure 17.24.150-3
WAIVER OF LANDSCAPE STRIP



PERIMETER LANDSCAPE STRIP WAIVED WITH COMMON ACCESS AGREEMENT 17.24.150E

(Ord. BL2019-111 § 1(Exh. A, § 33), 2020; Ord. BL2018-1416 § 9, 2019; Ord. BL2000-364 § 1 (part), 2000; Ord. 98-1323 § 1, 1998; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 6.4(C), 1997)

17.24.160 Interior planting requirements.

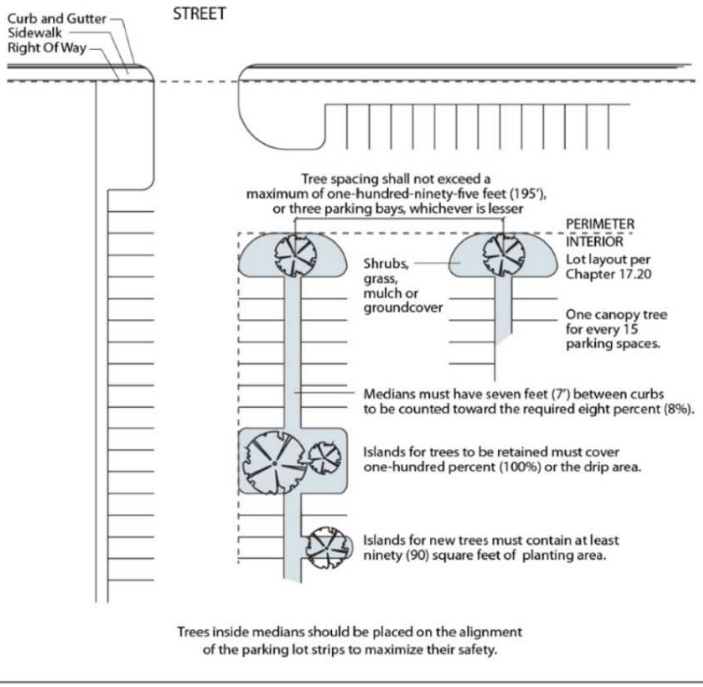
A. General Requirements. Except for parking lots containing fewer than thirty spaces within the urban zoning overlay district, at least eight percent of the gross area of the parking area shall be landscaped and interior planting areas are to be located within or adjacent to the parking area as tree islands, at the end of parking bays or inside seven foot wide or greater medians (where the median area is to be included as a part of the calculations for the interior planting area). Parking lots containing fewer than thirty parking spaces within the urban zoning overlay district shall be exempt from the eight per-cent landscaping requirement and the seven foot median requirement, but shall be required to install trees as described below. Interior planting areas shall be located so as not to impede stormwater runoff and provide shade in large expanses of paving and contribute to orderly circulation of vehicular and pedestrian traffic.

1. Trees shall be required at the minimum of one canopy tree for every fifteen parking spaces. All vehicular use areas located within the same block which serve one or more businesses or uses of land or share unified ingress and egress shall be considered as a single vehicular use area for the purpose of computing the required rate of trees, notwithstanding ownership. Required trees shall be at least six feet in height and two inch caliper. (See Figure 17.24.160) For principal use parking areas located in the CF and CF-NS districts not otherwise exempt from the interior planting requirements, street frontage trees planted to satisfy the requirements of Section 17.24.150 shall count towards the interior planting requirements of this section.

B. Minimum Size of Interior Planting Areas.

1. Outside the urban zoning overlay district, and for parking lots containing thirty or more parking spaces within the urban zoning overlay district, a minimum of ninety square feet of planting area shall be required for each new canopy tree (See Figure 17.24.160), and a minimum planting area of one hundred percent of the drip line area of the tree shall be required for all existing trees to remain. If the applicant can demonstrate that conditions allow that the tree will be preserved with an area less than one hundred percent, lesser area may be approved by the urban forester. (See Figure 17.24.160)

Figure 17.24.160
INTERIOR LANDSCAPE STANDARDS



2. For parking lots containing fewer than thirty parking spaces within the urban overlay zoning district, a minimum planting or tree grate area of one hundred percent of the drip line area of the tree shall be required for all new and existing trees. If the applicant can demonstrate that the tree can remain healthy with an area less than one hundred percent, lesser area may be approved by the urban forester. (See Figure 17.24.160) (Ord. BL2019-111 § 1(Exh. A, § 34), 2020; Ord. BL2018-1416 § 10, 2019; Ord. BL2009-586 § 1(Exh. A, § 38), 2010; Amdt. 1 with Ord. 2001-750 § 32, 2001; Ord. BL2000-364 § 1 (part), 2000; Ord. 98-1323 § 2, 1998; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 6.4(D), 1997)

17.24.170 Nonconforming parking areas.

When the gross area of a nonconforming parking area is increased, compliance with this article and the DTC is required as follows:

A. Expansion by Twenty-Five Percent or Less. When a parking area is expanded by not more than twenty-five percent, only the expanded area must be brought into compliance with this article and the DTC.

B. Expansion by More than Twenty-Five Percent. When a parking area is expanded by more than twenty-five percent, the entire parking area (pre-existing and expanded) shall be brought into compliance with this article and the DTC.

C. Repeated Expansions. Repeated expansions of a parking area over a period of time commencing with the effective date of the ordinance codified in this title shall be combined in determining whether the twenty-five percent threshold has been reached. (Amdt. 3 to Ord. BL2009-586 § 1(Exh. A, § 37.A), 2010; Ord. 96-555 § 6.4(E), 1997)

Article III. Landscape Buffer Yard Requirements

17.24.180 Purpose and intent.

The purpose of this article is to protect the value and integrity of property from the potential adverse effects of noncompatible land uses. To that end, this article requires that landscape buffer yards be provided at the boundaries of selected zoning districts. The landscape buffer yard standards of this article are also employed by other chapters of this title to accomplish special screening and buffering objectives. The width of the landscape buffer yard and the intensity of plantings required may vary depending upon the relative intensities of the abutting zone districts or the activity itself. In most cases, the property owner may choose among a number of buffer yard widths and plantings to satisfy the requirement. (Ord. 96-555 § 6.5(A), 1997)

17.24.190 Exemptions.

No landscape buffer yard shall be required in the following situations:

A. When a zoning boundary falls along a public street containing four or more travel lanes, or along an elevated railroad bed, utility line easement of fifty feet wide or greater, navigable river, or controlled access highway.

B. When a zoning boundary falls along a public street or alley within the urban zoning overlay district.

C. When a zoning boundary falls along an alley in the urban zoning overlay district and uses on both sides of the alley are residential. In all other situations, a minimum B-5 buffer may be substituted for the required buffer. (Ord. BL2009-586 § 1(Exh. A, § 39), 2010; Amdt. 2 to Ord. BL2005-712, 2005; Ord. BL2005-712 § 2, 2005; Ord. 2002-1020 § 1, 2002; Ord. 98-1268 § 1 (part), 1998)

17.24.200 Determination of landscape buffer yard requirements.

Generally, a landscape buffer yard shall be located at the perimeter of the building site along zoning district boundaries, or otherwise coincident with the edge of a specified facility that is to be screened, and shall not be located in any portion of a public right-of-way. When a zoning district boundary falls along a public street of less than four travel lanes, a B-2 landscape buffer yard may be substituted in lieu of the standard buffer required by Table 17.24.230. In applying the buffer standards of Table 17.24.230, the zoning administrator may take into consideration the future zoning designation of the abutting property as envisioned by the general plan to the extent that existing land uses are reasonably protected by an effective buffer. When the gross floor area of a building legally existing on the effective date of the ordinance codified in this section is enlarged by more than twenty-five percent, that perimeter portion of the property in proximity to the area of expansion shall be brought into conformance with the landscaping buffer yards standard of this code to the greatest extent considered reasonable by the zoning administrator. When incremental expansions occur over time, the total of all expansions shall be used by the zoning administrator in applying the provisions of this section. The following procedure shall be followed to determine the standard of landscape buffer yard required along a zoning district boundary:

A. Identify the zone district for the proposed site as well as for the abutting site(s);

B. Determine the landscape buffer yard standard required on each building site boundary (or portion thereof) by referring to Table 17.24.230;

C. Select the desired width/screening option from those listed in Section 17.24.240, landscape buffer yard standards. Any of the listed width or screening variations shall satisfy the requirement between abutting zone districts. (Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 6.5(C), 1997)

17.24.210 Landscape buffer yard design and materials.

A. Existing Native Plant Material. The use of existing plant material is strongly encouraged in landscape buffer yards. Existing natural groundcover should be retained where possible by avoiding scraping, grading and sodding within the landscape buffer yard. Where the planting requirements of Section 17.24.240, landscape buffer yard standards, require additional trees or shrubs to be installed in an existing natural area, installation should minimize disturbances to native species.

B. Trees. Where the planting requirements of Section 17.24.240 indicate that additional trees shall be installed, required trees shall be a minimum of six feet in height or two inches in caliper, as appropriate. At least one-half of the required trees shall be locally adapted natural evergreen species. Trees shall be distributed throughout the yards, so that there are no horizontal gaps between trees greater than thirty feet as measured parallel to the property line. Required canopy trees shall have an expected mature height of thirty feet or greater. Required understory trees shall have an expected mature height of at least fifteen feet. All trees shall count towards satisfying the tree density requirements of Article II of this chapter.

C. Shrubs. Shrubs planted to meet the minimum standards of this article shall be a minimum of one and one-half feet in height when planted and at least one-half shall be expected to reach five feet or greater in height within five years of planting. At least one-half of the required shrubs shall be locally adapted evergreen species. Shrubs planted on berms may have a lesser mature height provided that the combined height of the berm and plantings after five years is at least five feet. Shrubs shall be planted in such a way as to form continuous coverage with no shrub being greater than five feet from another as measured parallel to the property line. Shrubs may be planted in staggered rows or any other pattern which still achieves the desired continuous coverage. Pedestrian areas and other places where surveillance for the purpose of preventing crime is a design objective may be planted with the smaller of the required shrubs, but at least fifty percent of the shrubs installed to meet the requirements of this title shall be capable of attaining five feet in height at maturity.

D. Utility and Drainage Easements. Required landscape buffer yards shall not be permitted in utility or drainage easements unless approved by the affected utility and, if approved, the property owner shall execute and record a restrictive covenant agreeing to full replacement of plant materials which may be removed by the utility in the exercise of its rights within the easement.

E. Parking Area Landscaping. Perimeter plantings required for parking area landscaping may be counted toward satisfying landscape buffer yard requirements when the perimeter planting area coincides with the yard.

F. Compatibility of Landscaping Materials. Supplemental plantings should be chosen to enhance the existing vegetation within the landscape buffer yard. The species used in the supplemental plantings should be species that occur naturally in the landscape, and should be selected for their noninvasive properties.

G. Opaque Fences.

1. Outside of the urban zoning overlay district, when utilized to satisfy a screening requirement of this title, opaque fences shall be constructed of permanently affixed materials that comprise an integral part of the fence itself. The use of nonrigid plastic or fabric material shall not qualify as an opaque fence.

2. Within the urban zoning overlay district, when walls or fences are used as part of landscape buffer yards, the following materials shall be used and the landscaping shall be installed on the side of the wall facing the less intensive use:

a. Fences provided in Landscape Buffer Yards A and B may only be constructed of natural wood. Sheet plastic, sheet metal, corrugated metal, and plywood fencing shall not be allowed. The finished side of fences shall face the lower intensity use.

b. Walls provided in Landscape Buffer Yards B, C, and D may only be constructed of brick, stone, stucco over concrete block, split-faced or fluted block. Walls shall not be constructed of industrial waste materials (tires, pallets, etc.). (Ord. 2001-750 §§ 12—14, 2001; Ord. BL2000-364 § 1 (part), 2000; Ord. 96-555 § 6.5(D), 1997)

17.24.220 Other uses within landscape buffer yards.

A. Trails. Sidewalks or bike trails may occur within landscape buffer yards provided that the required effect of the yard is not compromised. In no event, however, shall the following uses be permitted in landscape buffer yards: playfields, stables, swimming pools, golf courses,

tennis courts, and other recreational facilities; parking areas and other vehicular use areas; dumpsters, equipment storage and other open storage; buildings or overhangs.

B. Stormwater Retention/Detention Facilities. Surface stormwater retention/detention facilities shall not be permitted to encroach into landscape buffer yards. Subterranean facilities which are designed in a manner so as not to interfere with the proper installation and maintenance of the yard are allowed.

C. Buffer yards shall be continuous and unbroken except for driveways or sidewalks required to access parking areas or streets. Driveway/sidewalk penetrations shall cross the buffer yard as close to perpendicular as possible and shall not exceed twenty-five percent of the entire buffer yard, with no single penetration to exceed thirty-five feet. (Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 6.5(E), 1997)

17.24.230 Table of landscape buffer yard requirements.

Landscape buffer yards shall be provided along zoning district boundaries to standards established by Table 17.24.230.

Table 17.24.230 TABLE OF LANDSCAPE BUFFER YARD REQUIREMENTS

	ZONING DISTRICT PROVIDING BUFFER YARD						
	1 AG, AR2a, RS80, R80, RS40, R40, RS30, R30, RS20, R20, RS15, R15, RS10, R10, RM2, RM2-NS, RM4, RM4-NS	**2** RN1, RN2, RL1, RL2, RL3 R8, R8-A, RS7.5, RS7.5-A, R6, R6-A, RS5, RS5-A, RS3.75, RS3.75-A, RM6, RM6-NS, RM9, RM9-NS, RM9-A, RM9-A-NS	**3** RM15, RM15-NS, RM15-A, RM15-A-NS, RM20, RM20-NS, RM20-A, RM20-A-NS, RM40, RM40-NS, RM40-A, RM40-A-NS, RM60, RM60-NS, RM60-A, RM60-A-NS, RM80-A, RM80-A-NS, RM100-A, RM100-A-NS, MHP	**4** RN1, RN2[2], ON, CN, CN-NS, CN-A, CN-A-NS, MUN, MUN-NS, MUN-A, MUN-A-NS, SCN, SCN-NS, OL, OR20, OR20-NS, OR20-A, OR20-A-NS, OR40, OR40-NS, OR40-A, OR40-A-NS	**5** RL1, RL2, RL3[2] CL, CL-NS, CL-A, CL-A-NS, CS, CS-NS, CS-A, CS-A-NS, MUL, MUL-NS, MUL-A, MUL-A-NS, SCC, SCC-NS	**6** CA, CA-NS, CF, CF-NS, SCR, SCR-NS, MUG, MUG-NS, MUG-A, MUG-A-NS, MUI, MUI-NS, MUI-A, MUI-A-NS, ORI, ORI-NS, ORI-A, ORI-A-NS, OG, OG-NS	**7** IWD, IR, IG
AB	—	B	C	C	C	D	D
2	—	—	B	C	C	D	D
3	—	—	—	B	B	C	D
4	—	—	—	—	A	B	C
5	—	—	—	—	—	A	B
6	—	—	—	—	—	—	B
7	—	—	—	—	—	—	—

Note 1: The zoning administrator may allow a necessary adjustment to the landscape buffer yard located along a rear property line to provide for necessary building area after determining an adjustment to a required build-to zone is necessary as permitted by Table 17.12.020.D. The zoning administrator may allow a necessary adjustment to the landscape buffer yard based on the nature of the existing and future land uses and site conditions in the general vicinity after receiving a written recommendation from the planning department.

Note 2: Per district standards, these apply only to Townhouse Court, Manor House, Multiplex, Low-rise Courtyard, and Low-rise Flats that share a side and/or rear property line with R- and RS-zoned land.

(Ord. BL2025-1005 § 1(Exh. A), 2025; Ord. BL2019-111 § 1(Exh. A, § 35), 2020; Ord. BL2018-1416 § 12, 2019; Ord. BL2015-1153 § 15, 2015; Ord. BL2013-567 § 2, 2013; Ord. BL2011-898 § 11, 2011; Amdt. 2 (part) with Ord. 98-1323 § 3, 1998; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; § 1(11) of Amdt. 1 with Ord. 96-555 § 6.5(F), 1997)

[The next page is CD17.24:17]

17.24.240 Landscape buffer yard standards.

A. Application of Landscape Buffer Yard Standards. The specifications contained in Figures 17.24.240A through 17.24.240D, set out at the end of this chapter, shall be used to select the desired landscape buffer yard option for the building site. These yard requirements are stated in terms of minimum yard width and the density of required plant material per linear foot of yard. To determine the total number of plants required, the length of each side of property requiring a landscape buffer yard shall be divided by one hundred and multiplied by the number of plants shown in the illustration.

Figure 17.24.240A
STANDARD A- LANDSCAPE BUFFER YARDS

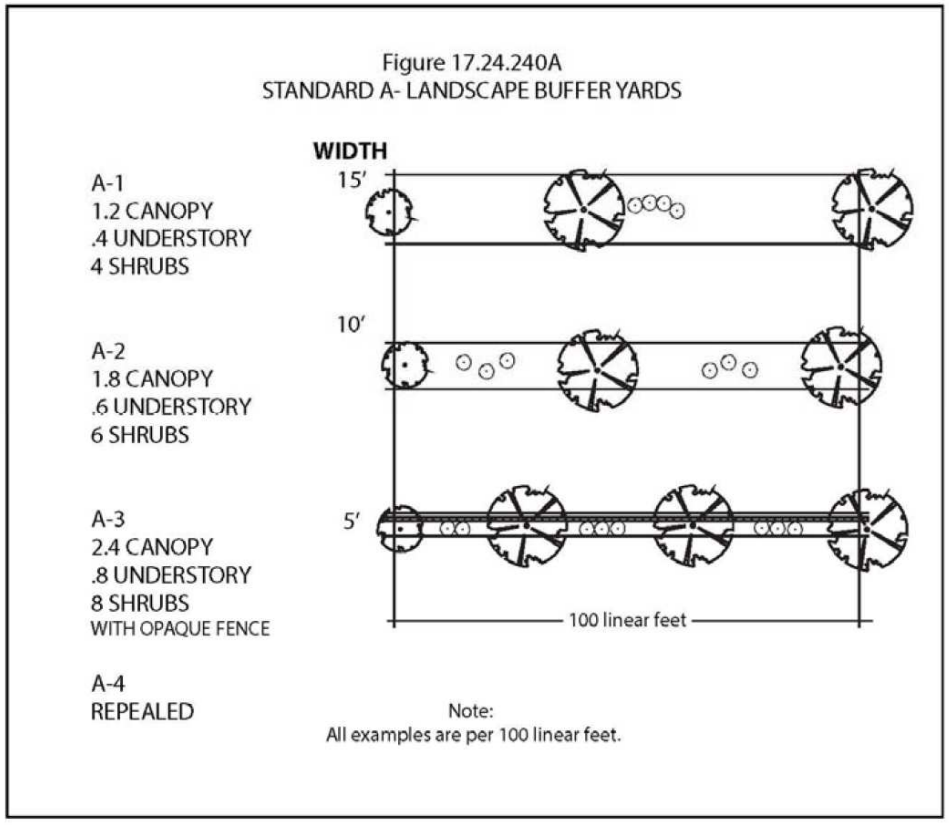
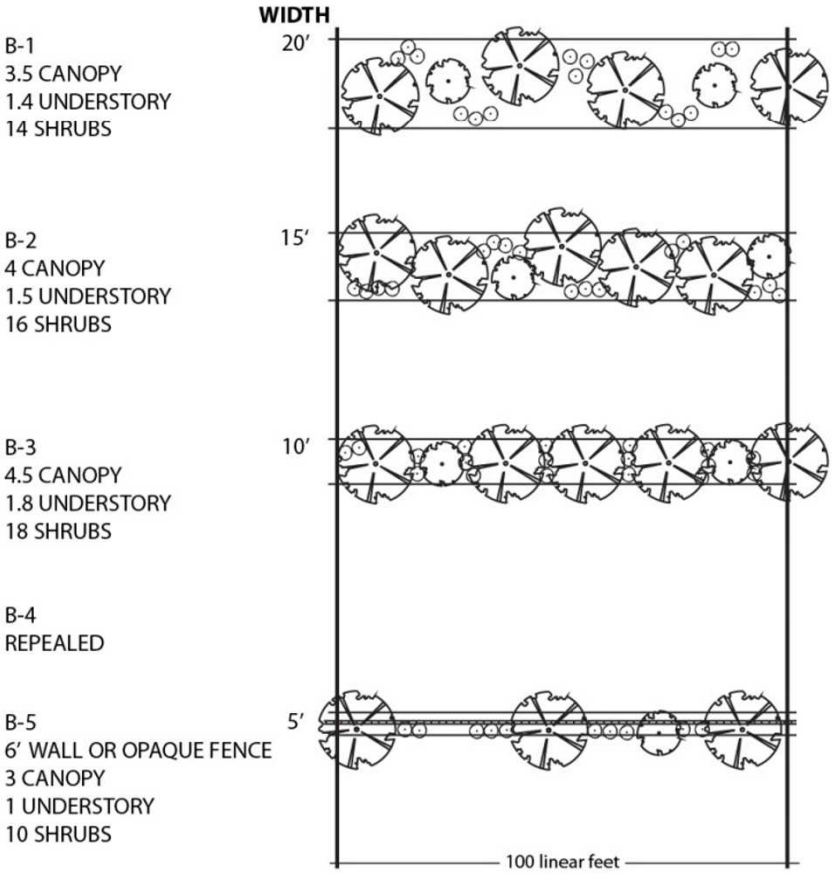
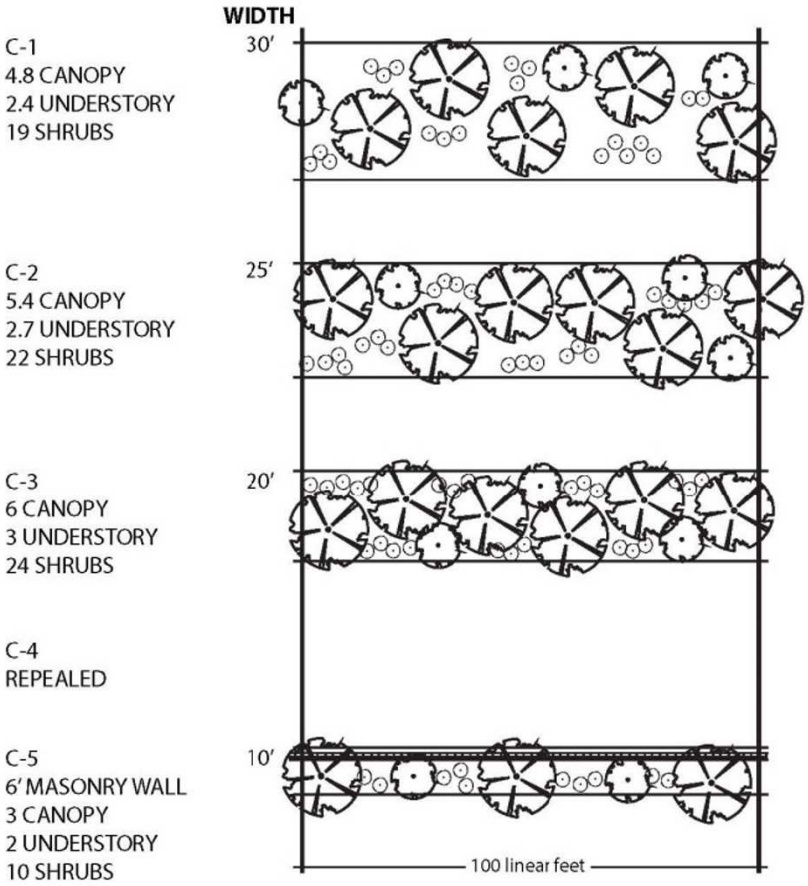


Figure 17.24.240B
STANDARD B- LANDSCAPE BUFFER YARDS



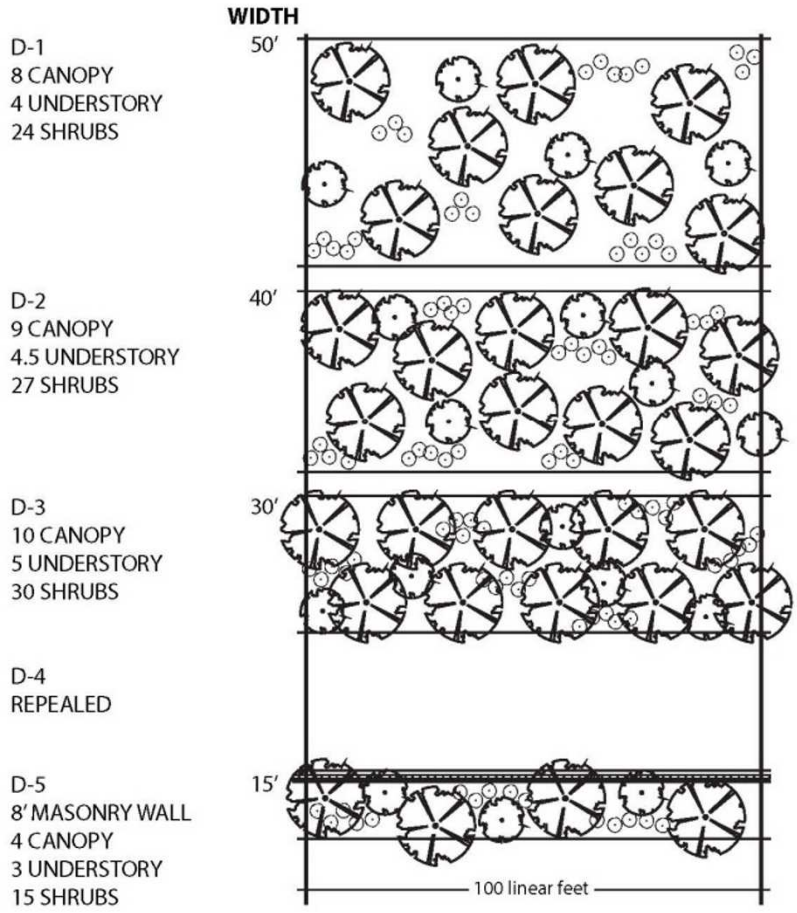
Note: Landscape Buffer Yard B-5 is only available within the urban zoning overlay district.
all examples are per 100 linear feet.

Figure 17.24.240C
STANDARD C- LANDSCAPE BUFFER YARDS



Note: Landscape Buffer Yard C-5 is only available within the urban zoning overlay district.
all examples are per 100 linear feet.

Figure 17.24.240D
STANDARD D- LANDSCAPE BUFFER YARDS



Note: Landscape Buffer Yard D-5 is only available within the urban zoning overlay district.
all examples are per 100 linear feet.

B. Allowable Design Variations. The landscape buffer yard is normally calculated as parallel to the property line. However, design variations, especially when used to incorporate native vegetation into the yard area, shall be considered. The edges of the landscape buffer yard may meander provided that:

1. The total area of the yard is equal to or greater than the total area of the required landscape buffer yard; and

2. The yard measures no less than the minimum width permitted by the applicable landscape buffer yard standard at all points along the perimeter of the property line requiring a landscape buffer yard.

C. Fractional Requirements. When the requirements of this article result in a fractional number of plantings, the fraction shall be rounded to one.

D. Planned Unit Development Districts. Notwithstanding any other provision of this title to the contrary, the landscaping buffer yard requirements for a PUD originally approved by the metropolitan council under a previous Zoning Code shall be provided as required by this code or as required in the originally approved PUD, whichever is greater. If a PUD approved under a previous Zoning Code provides for commercial and/or industrial uses within such PUD, and the underly-

ing base zoning of the property on which the PUD district exists is an agricultural or residential zoning district, then the commercial and/or industrial zoning district which best accommodates the land uses permitted within the PUD shall be the "Zoning District Providing Buffer Yard" for the purposes of Table 17.24.230.

E. Yard Exceeds Twenty Percent of Lot Area. In circumstances where the ground area required for the landscape buffer yard exceeds twenty percent of the total lot area, the width and the number of trees and shrubs within the yard may be reduced up to fifty percent provided that a solid wall or closed wooden fence at least six feet in height is provided along the length of the reduced landscape buffer yard.

F. Grading and Use of Berms. Proposals for grading within a landscape buffer yard shall demonstrate superior enhancement of the buffer function compared to retention of the existing grades. Grading should not endanger or remove existing trees which occur within a landscape buffer yard, unless the proposal clearly demonstrates an enhanced buffer. The use of earthen berms within a landscape buffer yard is encouraged when disturbance to existing vegetation can be minimized. Where berms are incorporated into the yard, the required plantings may have a lesser mature height, provided that the combined height of the berm and plantings will equal the required mature heights of plantings as set forth in Section 17.24.210B and C.

G. Waiver of Landscape Buffer Yard. Landscape buffer yard requirements may be waived by a demonstration of unusual site grade conditions which would clearly negate the effects of the required yard. The applicant shall furnish sections or profiles (drawn to scale) through the property line along the yard which is proposed for waiver. These drawings shall demonstrate the existing and proposed grades on both sides of the property line, as well as the principal structures on both properties. The sections or profiles shall show the line of sight for a pedestrian (taken at four and one-half feet above grade) from principal entrances and from the highest point on the site to be buffered. Such profiles or sections shall clearly demonstrate that the effect of the change in grade would negate the effect of a mature landscape buffer yard thirty feet in height. (Ord. BL2018-1416 § 11, 2019; Ord. 2001-750 §§ 15—31, 2001; Ord. BL2000-364 § 1 (part), 2000; Amdt. 2 (part) with Ord. 98-1323 § 4, 1998; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 6.5(G), 1997)

Chapter 17.28

ENVIRONMENTAL AND OPERATIONAL PERFORMANCE STANDARDS

Sections:

Article I. Environmental Performance Standards

17.28.010 Purpose and intent.
17.28.020 Applicability.
17.28.030 Hillside development standards.
17.28.040 Floodplain/floodway development standards.
17.28.050 Problem soil—Requirements.
17.28.060 Protection of Cedar Glade plant communities.
17.28.065 Trees.

Article II. Operational Performance Standards

17.28.070 Purpose and intent.
17.28.080 Applicability.
17.28.090 Reserved.
17.28.100 Lighting.
17.28.101 Air pollution control.
17.28.102 Storage capacity of flammable and combustible liquids, liquid gases and gases.
17.28.103 Underground utilities.
17.28.104 Compliance certification.

Article I. Environmental Performance Standards

17.28.010 Purpose and intent.

The purpose of this article is to establish standards for development in environmentally sensitive areas, in a manner which provides for reasonable use of the land while retaining to the maximum extent possible the environmentally sensitive portions in a predeveloped state. This article is predicated on the concept that land use policy decisions and zoning decisions must be made in the context of the land's characteristics. The choice of residential land uses should be based on site-specific characteristics which coincide with the many available varieties of housing. Commercial land use decision-making, conversely, is likely driven more by market forces, such as location or access, than by site characteristics. It is the intent of this article to offer incentives to minimize environmental disturbance. The requirements and standards of this article are intended to promote low-impact development in the sensitive hillsides and areas of special flood hazard of the community through incentives to preserve these lands in an undeveloped state, to insure protection of special vegetative assets and to promote well-conceived development which recognizes the problem soils of the community. (Ord. 96-555 § 7.1(A), 1997)

17.28.020 Applicability.

A. Hillside Development Standards. The hillside development standards apply to new construction on land in an undeveloped state where natural slopes are of fifteen percent or greater.

B. Special Flood Hazard Development Standards. The floodplain development standards apply to new construction where there are special flood hazard areas, as described in the Nashville stormwater management manual. Nothing contained in the official maps of special flood hazard shall prohibit the application of these regulations to lands which can be demonstrated by competent engineering survey to lie within any one hundred-year floodplain; conversely, any lands which can be demonstrated by competent engineering to lie beyond the floodplain shall not be subject to these regulations.

C. Problem Soils Requirements. The problem soil development standards apply to predevelopment conditions for new development located within the listed soil types as identified in the Davidson County Soil Survey (USDA, Soil Conservation Service).

D. Protection of Cedar Glade Plant Communities. The standards for Cedar Glade plant communities apply to predevelopment conditions for new residential construction located within Cedar Glades as identified by the Tennessee Department of Environment and Conservation.

E. Trees are acknowledged to be an important part of the natural environment and as such shall be protected and replaced as provided in this chapter.

F. Exemptions. The provisions of this article shall not apply to:

1. Any construction, development or use initiated pursuant to any valid building permit or approved final site plan issued or approved prior to the adoption of the ordinance codified in this title;

2. Any essential public utility facility, system or road initiated to provide utility services or access to a property;

3. Repairs or replacement to an existing structure or building that does not increase impervious surface area of the site more than twenty-five percent of the existing area or multiple increases of not more than fifty percent in any five-year period;

4. The construction of a single-family or two-family dwelling unit on a platted lot existing at the time of the enactment of the ordinance codified in this title; a lot depicted on a preliminary plat of subdivision having a valid approval by the planning commission on the effective date of the ordinance codified in this title; and subsequently recorded in compliance with that preliminary approval shall also be exempt. (Ord. BL2022-1122 § 9, 2022; § 5(1) of Amdt. 1 with Ord. 96-555 § 7.1(B), 1997)

17.28.030 Hillside development standards.

A. Residential Districts. The development of residentially zoned property shall minimize changes in grade, cleared area, and volume of cut or fill on those hillside portions of the property with twenty percent or greater natural slopes. Approval of a final site plan for a "critical lot" established by the subdivision regulations shall be based upon a demonstration that the proposal takes into consideration factors such as, but not limited to, soil conditions, degree of slope and feasibility of construction. The standards for review of critical lots from the adopted subdivision regulations shall apply.

1. Single or Two-Family Lots. The following provisions of this section shall not apply to single or two-family lots equal to or greater than one acre in size. For lots of less than one acre, any natural slopes equal to or greater than twenty-five percent shall be platted outside of the building envelope and preserved to the greatest extent possible in a natural state. The planning commission may authorize the creation of a single or two-family lot of less than one acre in size with natural slopes equal to or greater than twenty-five percent subject to the following standards and conditions:

a. The resulting lot shall be designated as a "critical lot" on the final plat of subdivision approved by the metropolitan planning commission and the department of public works;

b. For natural slopes that generally rise away from the fronting street, the building envelope width shall be as approved on all preliminary plats approved prior to March 1, 2006. After March 1, 2006, a building envelope on less than twenty percent natural slope and a minimum width of seventy-five feet at the building line shall be provided, or

c. For natural slopes that are generally parallel with fronting street, the building envelope width shall be as approved on all preliminary plats approved prior to March 1, 2006. After March 1, 2006, a building envelope on less than twenty percent natural slope and a minimum width of seventy-five feet at the building line shall be provided, or

d. For natural slopes that generally fall away from the fronting street, a building envelope on less than twenty-five percent natural slope shall be provided;

e. A certified engineer can demonstrate, through the use of special design and construction techniques, that a residential structure will be constructed on the lot in a manner which effectively minimizes disturbance of the hillside and optimizes the preservation of mature trees and will not adversely impact the storm water runoff on down slope or adjacent properties;

f. All specially noted design, construction and drainage standards shall be incorporated into the preliminary and final subdivision plat approvals, and recorded in the form of a covenant running with the land; and

g. The clearing of trees exceeding eight inches in diameter from those natural slopes equal to or greater than twenty-five percent shall be minimized by sensitive construction techniques.

2. Single and/or two-family subdivisions in areas characterized by twenty percent or greater slopes shall employ the conservation development provisions of Section 17.12.090. In general, lots so created shall be grouped on those portions of the site that have natural slopes of less than twenty percent. The planning commission may authorize lots on natural slopes ranging up to twenty-five percent, subject to the special standards and conditions noted above. Large contiguous areas containing natural slopes in excess of twenty-five percent should be recorded as either common or natural open space and permanently maintained in a natural state.

3. All Other Development in Residential Districts. For any multifamily or nonresidential form of development occurring within a residential district (the RM40, RM40-NS, RM40-A, RM40-A-NS, RM60, RM60-NS, RM60-A, RM60-A-NS, RM80-A, RM80-A-NS, RM100-A, and RM100-A-NS districts excepted), manipulation of the natural slopes by grading shall result in an effective impervious surface ratio (ISR) for those portions disturbed as shown in Table 17.28.030A.

a. That portion of a multifamily development site containing large contiguous areas of natural slopes of twenty-five percent or greater should be permanently maintained in a natural state. The clearing of trees exceeding eight inches in diameter from those natural slopes shall be minimized by sensitive construction techniques.

b. The use of retaining walls, rip rap or hydraulically applied concrete to stabilize slopes within multifamily developments shall be screened as follows:

i. When oriented towards a lot or parcel zoned R/R-A or RS/RS-A, apply the next higher landscape buffer yard standard from Section 17.24.240;

Table 17.28.030A
ISR ADJUSTMENTS (RESIDENTIAL DISTRICTS)

Natural Slope (%) ISR	Standard ISR		Adjustment Factor		Effective ISR
< 15%	Table 17.12.020B	×	1.0	=	Effective ISR
15 < 20%	Table 17.12.020B	×	0.66	=	Effective ISR
20 < 25%	Table 17.12.020B	×	0.33	=	Effective ISR
25% +	Table 17.12.020B	×	0.0	=	0

* For the purposes of calculation, slopes may be averaged for the entire lot area employing slope contour intervals of two feet.

ii. When oriented towards another lot or parcel with an RM zoning classification, apply landscape buffer yard Standard A from Section 17.24.240; and

iii. When oriented towards a public street, apply landscape buffer yard Standard B from Section 17.24.240.

B. Nonresidential Sites.

1. In all nonresidential zoning districts except CF, CF-NS, MUI, MUI-NS, MUI-A, and MUI-A-NS, manipulation of the natural slopes by grading shall result in effective impervious surface ratio (ISR) adjustments for those portions disturbed as shown in Table 17.28.030B.

2. Grading standards for hillside sites in nonresidential zone districts are as follows:

a. For lots or parcels containing natural slopes of twenty percent or greater, approval of a final site plan shall be based upon a demonstration that the development plan minimizes unnecessary disturbance to those slopes in the placement and orientation of building and parking areas. Architectural and engineering features which reduce unnecessary encroachment on steep slopes may include, but are not limited to, the use of retaining walls and structural foundations to return to natural grade.

b. The use of retaining walls, rip rap or hydraulically applied concrete to stabilize slopes on nonresidential sites shall be screened as follows:

i. When oriented towards a lot or parcel zoned R and R-A, RS and RS-A or RM, apply the next higher landscape buffer yard standard from Section 17.24.240; and

ii. When oriented towards a public street, apply landscape buffer yard standard B from Section 17.24.240.

Table 17.28.030B
ISR ADJUSTMENT (NONRESIDENTIAL DISTRICTS)

Natural Slope (%)	Standard ISR		Adjustment Factor		Effective ISR
< 15%	Table 17.12.020C	×	1.0	=	Effective ISR
15 < 20%	Table 17.12.020C	×	0.66	=	Effective ISR
20 < 25%	Table 17.12.020C	×	0.33	=	Effective ISR
25% +	Table 17.12.020C	×	0.0	=	0

* For the purposes of calculation, slopes may be averaged for the entire lot area employing slope contour intervals of two feet.

(Ord. BL2022-1121 § 5, 2022; Ord. BL2019-111 § 1(Exh. A, §§ 36, 37), 2020; Ord. BL2015-1153 § 16, 2015; Ord. BL2011-898 §§ 11, 13, 2011; Ord. BL2009-586 § 1(Exh. A, § 40), 2010; Amdt. 1 to Ord. BL2006-1045 § 1, 2006; Ord. BL2006-1045 § 1, 2006; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; § 5(2), (3) of Amdt. 1 with Ord. 96-555 § 7.1(C), 1997)

17.28.040 Floodplain/floodway development standards.

A. Limited encroachments into the preserved floodplain may be authorized as a variance by the stormwater management commission, as set forth in Section 15.64 of the Metropolitan Code of Laws. Such variances shall be approved only if the committee finds that the encroachment reduces the flood danger or would improve and enhance the environmental quality of the affected floodplain section. Variances shall not be approved for greater than twenty percent of the floodplain area required to be preserved.

B. All development shall be undertaken consistent with the flood insurance standards and requirements of the Federal Emergency Management Agency, as necessary, to maintain the eligibility of the National Flood Insurance Program within Davidson County. Notwithstanding any provision herein to the contrary, all development alterations or improvements that would otherwise be subject to Chapter 15.64 of this Code shall comply with the provisions of that chapter and the regulations and technical guidelines promulgated by the department pursuant to that chapter.

C. Residential Development. Residential development on property encumbered by natural floodplain or floodway on the effective date of the ordinance codified in this section shall comply with the following, except for the installation of streets and utilities where required by the planning commission to alleviate an undue hardship:

1. Single or Two-Family Lots. Land area designated as natural floodplain or floodway on the effective date of said section may be included within a residential lot, but if manipulated, shall not be counted towards satisfying the minimum lot size requirements of the base zoning district. Any residential lot, or any portion of a residential lot, containing natural floodplain shall be designated as a "critical lot" and minimum finished floor elevations shall be established on the final plat of subdivision approved by the metropolitan planning commission and the department of water and sewerage services.

2. Grouped lots. A single and/or two-family subdivision proposed on property containing natural floodplain and floodway areas shall employ the conservation development Section 17.12.090 or the Planned Unit Development (PUD) cluster lot option of Section 17.36.070. Residential lots under the conservation development or PUD cluster lot option may be grouped within the manipulated areas of the natural floodplain. Any residential lot, or any portion of a residential lot, containing natural floodplain shall be designated as a "critical lot" and minimum finished floor elevations shall be established on the final plat of subdivision approved by the metropolitan planning commission and the department of water and sewerage services. Protected floodway and floodplain areas shall not be excluded from the calculation of gross land area for purposes of determining lot yield pursuant to Section 17.12.090. (Ord. BL2023-1888 § 25, 2023; Ord. BL2022-1121 § 6, 2022; Ord. BL2016-513 §§ 32—36, 2017; Ord. BL2011-898 § 11, 2011; Ord. BL2009-586 § 1(Exh. A, § 41), 2010; Amdt. 1 to Ord. BL2002-1021 § 1, 2003; Ord. BL99-117 § 1 (part), 2000; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 7.1(D), 1997)

17.28.050 Problem soil—Requirements.

On lots or parcels identified as containing Bodine-Sulfura, Dellrose Cherty Silt Loam, Newark or Taft Silt loam soils, applications for final site plan approval shall be accompanied by a geotechnical report. Both the geotechnical report and the site plan shall be certified by a qualified engineer licensed in the State of Tennessee. The qualifying engineer shall certify that the construction techniques proposed adequately mitigate any potential soil hazards identified by the report. (Ord. 96-555 § 7.1(E), 1997)

17.28.060 Protection of Cedar Glade plant communities.

A residential subdivision or multifamily development proposed on land containing a designated Cedar Glade environment shall make all reasonable effort to preserve that environment through the use of conservation development afforded by this title. (Ord. BL2022-1121 § 7, 2022; Ord. 96-555 § 7.1(F), 1997)

17.28.065 Trees.

A. Designation of Tree Types.

1. Designation of Protected Trees. A protected tree is any existing tree with at least a six-inch diameter at breast height (DBH); or any existing tree two inches in DBH or larger located in the public right-of-way. To qualify as a protected tree, the tree shall not be listed on the most recent edition of the Tennessee Invasive Exotic Plant List and shall be in fair or better condition with no major insect or pathological problems.

2. Designation of a Heritage Tree.

a. A heritage tree is any tree that meets the one or more of the following criteria:

i. Any tree with a DBH that meets or exceeds the following sizes:

TREE TYPE	DBH	EXAMPLES but not limited to:
Deciduous Canopy	24"	Oak, Maple, Poplar, Planetree, Ginko

TREE TYPE	DBH	EXAMPLES but not limited to:
Evergreen Tall	10"	Am Holly, So. Magnolia, Pine, Spruce, Cedar
Deciduous Understory	8"	Redbud, Dogwood, Flowering Cherry, Jap. Magnolia, Jap. Maple
Evergreen Low	8"	Dwf. Magnolia, Hemlock, Hybrid Holly, Cherry Laurel (tree form)

ii. Any tree registered in the metro historic or specimen tree program; or

iii. Any tree listed on the Tennessee Champion Tree list or the Tennessee Landmark and Historic Tree Registry as maintained by the Tennessee Division of Forestry.

b. In addition to the criteria listed above, to qualify as a heritage tree the tree shall meet all of the following:

i. Shall not be listed on the most recent edition of the Tennessee Invasive Exotic Plant List;

ii. Must have a life expectancy of greater than fifteen years;

iii. Must have a structurally sound trunk without extensive decay;

iv. Must have no more than one major and several minor dead limbs; and

v. Must have no major insect or pathological problems.

3. Designation of Historic and Specimen Trees. Historic and Specimen Trees program is a volunteer program in which trees shall be designated by the Metropolitan Beautification and Environment Commission based on advice from the Metropolitan Tree Advisory Committee and consent of the property owner. No historic or specimen tree shall be removed without a finding by the Metropolitan Beautification and Environment Commission that the tree is a hazard or a determination that it is not economically or practically feasible to develop the parcel without removing the tree. All trees in the Historic and Specimen Trees program shall also be designated as Heritage trees as defined in Section 17.28.065 Trees.

B. Tree Preservation.

1. It is the intent of this section to minimize the removal of trees and to ensure that property owners and developers take reasonable measures to design and locate the proposed improvements so that the number of trees to be removed is minimized. In particular, the design shall attempt to preserve protected, heritage, and specimen and historic trees, which meet the criteria set forth in Section 17.28.065.A, designation of tree types. For purposes of this chapter, the term 'retained tree' means a tree that is selected to be saved or preserved for purposes of being counted toward the required tree density for the property and which is not listed on the most recent edition of the Tennessee Invasive Exotic Plant List and which is in fair or better condition, with no major insect or pathological problems.

2. Any tree with a diameter at breast height (DBH) of twenty-four inches or more, or that qualifies as a heritage tree under Section 17.28.065.A of this title, shall be survey located and depicted on the final site plan.

C. Replacement of Trees.

1. Trees removed pursuant to Section 17.40.470, tree removal permit procedures, shall be replaced at the expense of the property owner or developer to meet the required tree density standard.

2. Any retained tree that is removed without a tree removal permit shall be replaced on an inch for inch basis as specified Section 17.28.065.D.

3. Tree Density.

a. Each property, other than those residential properties provided for below. of this section, shall attain a tree density factor of at least twenty-two units per acre using retained or replacement trees, or a combination of both.

b. Residential properties shall attain the following tree density factors:

i. Property within a single and/or two-family residential subdivision for which the preliminary site plan is filed with the planning commission after the date of enactment of this subsection shall attain a tree density factor of at least fourteen units per acre using retained or replacement trees, or a combination of both, excluding the area of the building lots. Proof of compliance with this requirement shall be provided prior to the release of any applicable public infrastructure bonds.

ii. Requirements for individual single and two-family residential lots.

(1) Individual single and two-family lots, other than those lots zoned AG or AR2a, shall include at least one two-inch caliper tree for each thirty feet of lot frontage (or portion thereof), excluding alley frontage. Such trees must be chosen from the Urban Forestry Recommended and Prohibited Tree and Shrub List, and shall be of a form and quality set out in the American Standard for Nursery Stock (ANSI Z60.1, latest edition).

(2) Individual single and two-family lots on a cul-de-sac shall attain a tree density factor of at least two two-inch caliper trees for each thirty feet of lot frontage (or portion thereof). Such trees must be chosen from the Urban Forestry Recommended and Prohibited Tree and Shrub List, and shall be of a form and quality set out in the American Standard for Nursery Stock (ANSI Z60.1, latest edition).

(3) If the width of an individual single or two-family lot is less than twenty-five percent of the average lot depth, the lot shall attain a tree density factor of at least seven units per acre using retained or replacement trees, or both.

(4) Proof of compliance with this subsection shall be provided prior to the issuance of a certificate of occupancy.

iii. Alternative tree density requirements for single and two-family residential lots. In lieu of the requirements of subsection 2.a.ii of this section, a home builder may petition the urban forester for credit for retaining existing trees on the building lot, provided that the overall tree density, including both replacement and retained trees, is not less than seven units per acre. Retained trees used to satisfy this requirement shall be protected according to Section 17.28.065.A. Proof of compliance with this requirement shall be provided prior to the issuance of a certificate of occupancy.

c. Compliance with this subsection 3., tree density, shall be calculated using gross acreage of the property but shall not include the following:

i. The portion of the land area currently or proposed to be covered by buildings;

ii. The fenced area of any athletic field;

iii. The area of a lake or pond which is covered by water year round; and

iv. Open areas of golf facilities.

v. Natural areas preserved in open space pursuant to Section 17.12.090 Conservation Development.

d. Retained and replacement trees shall contribute toward the tree density.

e. Tree density schedules shall be calculated according to the following schedules.

Retained Tree Schedule

UNITS represents basal area

DBH refers to diameter at breast height

DBH	UNITS	DBH	UNITS	DBH	UNITS	DBH	UNITS
6	1.8	20	6.0	34	11.9	48	28.8
8	2.4	22	6.6	36	12.6	50	30.0
10	3.0	24	8.4	38	13.3	52	31.2
12	3.6	26	9.1	40	20.0	54	35.1
14	4.2	28	9.8	42	23.1	56	36.4
16	4.8	30	10.5	44	26.1	58	37.7
18	5.4	32	11.2	46	27.6	60	42.0

Heritage Tree Schedule

UNITS represents basal area

DBH refers to diameter at breast height

DBH	UNITS	DBH	UNITS	DBH	UNITS
8	3.2	14	5.6	20	8.0
10	4.0	16	6.4	22	8.8
12	4.8	18	7.2	24*	9.6

*Greater than 24" equals DBH × 0.5 per inch.

Replacement Tree Schedule

UNITS represents basal area

CAL refers to caliper size (a tree's diameter measured six inches from the top of the root ball)

Canopy Trees							
CAL	UNITS	CAL	UNITS	CAL	UNITS	CAL	UNITS
2	0.5	5	0.9	8	1.3	11	1.9
3	0.6	6	1.0	9	1.5	12	2.1
4	0.7	7	1.2	10	1.7	14	2.3

Understory and Columnar Trees							
CAL	UNITS	CAL	UNITS	CAL	UNITS	CAL	UNITS
2	0.25	5	0.5	8	0.7	11	1.0
3	0.3	6	0.5	9	0.8	12	1.1
4	0.4	7	0.6	10	0.9	14	1.2

4. Existing prohibited trees may be counted for full credit of the tree density requirement if in the opinion of the urban forester, they are healthy existing trees.

5. Single-trunk replacement trees shall be (i) a minimum width of two-inch calipers; (ii) a minimum height of six feet; and (iii) shall consist of recommended species listed in the Urban Forestry Recommended and Prohibited Tree and Shrub List.

6. A retained tree moved from one location to another on the site may be given credit upon approval of the urban forester.

7. Except for sites located within the Downtown Code (DTC) zoning district, credit toward the required tree density may be given for the installation of street trees that meet the following criteria:

a. Street trees shall be chosen from the Urban Forestry Recommended and Prohibited Tree and Shrub List and shall be a minimum of two-inch caliper and a minimum of six feet in overall height. Canopy trees shall be installed except where conflicts with overhead utility lines exist; in those instances, understory trees may be substituted.

b. Street trees installed for tree density credit shall be depicted on the landscape plan.

c. The proposed location of street trees and planting area dimensions and standards shall be subject to review and approval by the urban forester and metro public works.

d. The owner of the property frontage along which the street trees are installed shall maintain street trees installed per this title to International Society of Arboriculture standards.

8. Subdivision developments, other than single and two-family residential subdivisions required to meet the tree density requirements of subsection 2. of this section, shall be exempt from the tree replacement provisions of this title during the phases of construction to install streets, utilities and drainage structures required to be installed or bonded prior to recording of a final plat, so long as: (1) the tree survey includes the area to be disturbed by the construction of streets, utilities and required drainage facilities; and (2) the removal of protected and heritage trees, as set forth in subsection 17.28.065, is confined to the area of disturbance determined by the planning commission to be the minimum area necessary to install the infrastructure required by the subdivision regulations; and (3) so long as no protected and heritage trees, as set forth in subsection 17.28.065, are to be removed outside of the agreed upon disturbed area. Development of individual parcels within the subdivision must comply with the tree replacement provisions unless exempted by other provisions of this title.

9. Existing developments not otherwise exempted shall comply with the tree replacement provisions of this title when undergoing expansions as follows:

a. No additional compliance is required if there is no enlargement of the lot, or in the improved portion of the existing lot, and either:

i. The value of any one expansion is less than twenty-five percent, or the value of multiple expansions during any five-year period is less than fifty percent, of the value of all improvements on the lot prior to expansion; or

ii. The total building square footage of any one expansion is less than twenty-five percent, or the total building square footage of multiple expansions during any five-year period is less than fifty percent of the total building square feet of all improvements on the lot prior to expansion.

b. When the previously improved portion of a lot is enlarged, or additional area is incorporated into the lot, only the additional area or expanded area of improvement is required to be brought into compliance with the tree replacement requirements, if either:

i. The value of any one expansion is less than twenty-five percent, or the value of multiple expansions during any five-year period is less than fifty percent of the value of all improvements on the lot prior to expansion; or

ii. The total building square footage of any one expansion is less than twenty-five percent, or the total building square footage of multiple expansions during any five-year period is less than fifty percent of the total building square footage of all improvements on the lot prior to expansion.

c. Total compliance is required if exemption cannot be claimed under other provisions of this section.

10. Any replacement tree planted for credit shall be replaced by a tree of equal or greater diameter than originally planted if the tree dies. Under no circumstances shall any replacement tree, planted for credit, be removed by the owner or developer without the prior permission of the urban forester. All trees and shrubs required by this code shall be inspected within three years of initial planting. Notwithstanding the foregoing provision of this subsection to the contrary, there is no requirement that a replacement tree planted for credit be replaced if the tree dies as a result of a natural disaster or other act of God. For purposes of this section, 'natural disaster' shall not include drought.

11. Where construction work will be completed under a phased schedule, site work and tree removal for the entire tract may be completed at one time and replacement or addition of trees can be deferred for a maximum of five years, so long as each phase is in compliance with the tree density requirements upon completion of that phase, and so long as the entire site is in compliance with the tree density requirements within five years, or upon completion of the entire project, whichever occurs first.

12. Notwithstanding any provisions of this title to the contrary, the board of zoning appeals may hear and decide appeals from any order, requirement, decision or determination made by the urban forester in carrying out the enforcement of this chapter.

D. Protection of Trees During Development Activities.

1. General. To assure the health and survival of retained trees, the following kinds of tree injuries shall be prohibited during all development activities:

a. Mechanical injuries to roots, trunk and branches;

b. Injuries by chemical poisoning or soil flooding;

c. Injuries by grade changes;

d. Injuries by excavations, trenching, or soil compaction; and

e. Injuries by paving or other soil covering or material storage.

2. Tree Protection Zone. A tree protection zone shall be established around each retained tree, tree preservation area, and natural area, as required, as shown in Figure 17.28.065.D. The tree protection zone shall be comprised of two distinct areas.

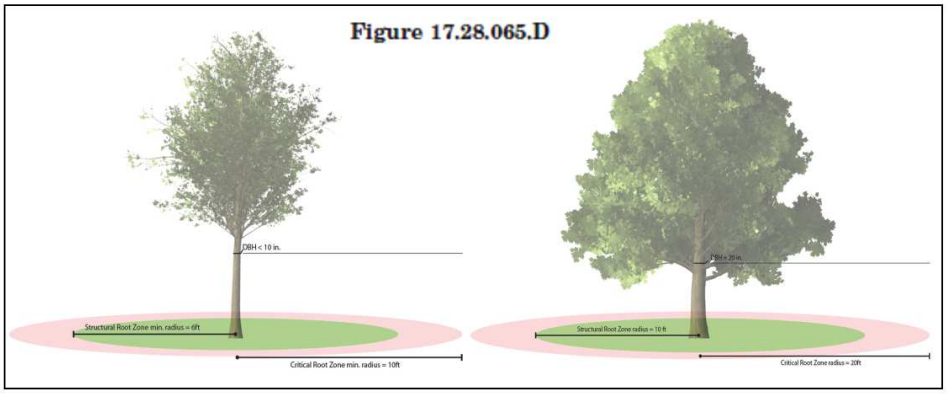
a. The structural root zone (SRZ) is to be determined by measuring one-half foot per each inch of tree diameter at breast height. If the SRZ is less than six feet, then the SRZ shall be a minimum of six feet.

1. No area within the SRZ shall be disturbed or modified.

b. The critical root zone (CRZ) shall be directly adjacent to the SRZ and is to be determined by measuring one foot per each inch of tree diameter at breast height. If the CRZ is less than ten feet, the protection zone shall be a minimum of ten feet.

1. The configuration of the CRZ may be adjusted up to twenty percent upon approval of planning or codes staff, as applicable. This may include pre-existing site conditions such as structures, foundations, or utilities. It may also include tree characteristics such as species and tolerance to stress and construction activities.

Figure 17.28.065.D



[2. Reserved.]

3. Development Prohibited within the Tree Protection Zone. All development activities shall be prohibited within the tree protection zone provided for any protected trees, including any construction of buildings, structures, paving surfaces, and storm-water retention/detention ponds. All temporary construction activities shall also be prohibited within tree protection areas, including all digging, concrete washing, storage of construction material, and parking of construction vehicles.

4. Development Prohibited within the Natural Areas. All development activities shall be prohibited within any tree protection zone established for a natural area preserved in open space pursuant to Section 17.12.090 Conservation Development.

5. Fencing of Tree Protection Zone or Natural Area Open Space. Prior to the commencement of grading or construction, the developer shall enclose the entire tree protection zone or natural area open space within a fence as follows:

a. Chain link fencing at least four feet in height and secured using appropriate posts spaced not more than ten feet apart.

b. During construction, each tree protection zone shall be identified with temporary signs to clearly demarcate the extent of the zone. Signs shall be made of a recyclable material and installed on the tree protection fence, visible on all sides of the fenced-in area at a rate of at least one sign for every one hundred linear feet. The size of each sign must be a minimum of two feet by two feet and shall contain the following language in English and Spanish: "TREE PROTECTION ZONE: KEEP OUT. ZONA DE LA PROTECCION DEL ARBOL. NO SE PERMITE ENTRAR". The owner shall maintain the protective barrier during the entire construction process and shall make certain that it is observed by the contractor.

c. The location of tree fence shall be coordinated with any required silt fence. Tree fence shall be located toward the tree with the silt fence outside to prevent erosion inside a tree preservation area.

d. Tree fence shall be maintained until applicable staff has completed a final inspection and released the project. For the purposes of this section, "applicable staff" means the urban forester or staff designated by the urban forester.

6. Tree Protection Zone Encroachment.

a. Utility Excavation. Excavating or trenching shall not be permitted within the tree protection zone. Utilities shall be located away from the tree protection zone. If trees are damaged or destroyed during excavation or trenching, the damaged or destroyed trees shall be replaced in accordance with Section 17.28.065. Placing of utilities through the use of tunnelling may be permitted with approval from planning or codes staff, as applicable. Applicable staff may propose rules and regulations governing and/or limiting utilities in the tree protection zone.

b. Sodding and Groundcover. Placement of sod or other groundcovers and the preparation of the ground surface for such covers shall be permitted within the tree protection zone, so long as tree roots in the area are not damaged by the method of preparation.

c. Tree Care. Pruning of branches or roots or removal of dead limbs on a tree/s located within the tree protection zone shall be permitted. An ISA certified arborist shall be required to supervise all operations related towards tree care. All tree care activities shall be done without the use of heavy machinery or vehicles within the tree protection zone. Prior to tree care activities, planning or codes staff, as applicable, shall be informed in writing.

7. Inspections.

a. All retained trees, pursuant to a tree survey, shall be inspected by applicable staff one year following completion of the project to ensure that they are surviving in a healthy condition.

b. Retained trees which require replacement shall be determined by planning or codes staff, as applicable.

c. Any retained tree which is damaged during construction, or with damage occurring as a result of construction, shall be replaced as provided in Section 17.28.065. Trees planted to replace damaged or removed protected trees shall not be counted toward the site TDU.

d. The owner shall be notified in writing of staff's determinations.

8. Tree Protection Violations.

a. Civil penalties shall be assessed in the event of injury, damage, or removal of trees within the tree protection zone. Penalties shall be assessed at fifty dollars per violation, per day. Each tree, in which a violation occurred, shall be considered an individual violation. No notice of violation shall be required prior to the assessment of civil penalty pursuant to this subsection.

b. In the event disturbance occurs, all trees within the tree protection zone shall no longer be counted for TDU requirements unless an assessment has been provided by an ISA certified arborist and approved by applicable staff.

c. Any injury, damage, or removal of tree shall be determined as removal without a permit and shall be replanted in accordance with Section 17.28.065.

d. A site shall be considered in compliance with the submittal of a revised landscape plan and planting deadline approved by planning or codes staff, as applicable. In the event that replacement trees are not planted by the agreed-upon deadline, civil penalties previously assessed shall resume until final inspection of replacement trees.

E. Less Desirable Trees. The urban forester shall compile a list of plants which are considered less desirable in the area of the metropolitan government. Upon adoption following public hearing and comment by the metropolitan planning commission, such list shall have the force and effect of regulation. The metropolitan beautification and environment commission, upon advice of the tree advisory board, may add or delete trees from such list from time to time following public hearing. Once such list of less desirable plants is duly adopted, the plants included therein may not be used to satisfy the requirements of Section 17.28.065.C, except as specifically permitted therein. Use of such trees in excess of the requirements of sections listed above is not prohibited.

(Amdt. 1 to Ord. BL2024-687 § 2, 2025; Ord. BL2024-687 § 2, 2025; Ord. BL2022-1122 § 11, 2022)

Article II. Operational Performance Standards

17.28.070 Purpose and intent.

The operational performance standards included in this article are intended to protect the health, safety and welfare of the citizens of Metropolitan Nashville and Davidson County by regulating potential hazardous or nuisance characteristics of land uses permitted by this title. (Ord. 96-555 § 7.2(A), 1997)

17.28.080 Applicability.

A. In case of conflict between the operational performance standards set forth herein and any rules or regulations adopted by any other applicable governmental agency, the more restrictive shall apply.

B. When an existing land use or structure is expanded, enlarged or otherwise reconstructed after the effective date of the ordinance codified in this title, the applicable performance standards shall apply to the expanded, enlarged or reconstructed portion, with the exception of undergrounding utilities; see Section 17.28.103 of this chapter.

C. The following performance standards are regulated by other codes:

1. Title 10, Chapter 10.56 of the metro code (Air Pollution Control) regulates smoke, particulate matter, demolition and odors, and is administered by the metropolitan health department.

2. Title 10, Chapter 10.64 of the metro code (Fire Prevention Code) regulates fire, hazardous materials, and explosive hazards, and is administered by the metropolitan fire marshal.

D. The following activities are exempt from the operational performance standards of this article:

1. Temporary construction, excavation and grading;

2. Demolition activities which are necessary and incidental to the development of facilities on the same lot, on another of several lots being developed at the same time, or on the public right-of-way or easement for a community facility. (Ord. BL2005-628 § 2, 2005; Ord. 96-555 § 7.2(B), 1997)

17.28.090 Reserved.

Editor's note—Ord. BL2019-1631, § 1, adopted August 20, 2019, repealed § 17.28.090, which pertained to noise and derived from Ord. 96-555 § 7.2(C), 1997. The user's attention is directed to Title 9, Noise and Amplified Sound.

17.28.100 Lighting.

A. Definitions Specific to this Section. When used in this chapter, the following words and terms shall have the meanings ascribed to them in this section. In the event of a conflict between a definition in this section and Section 17.04.060, the definition in this section will control.

"Ambient lighting" means the general overall level of lighting in an area.

"Architectural lighting means outdoor lighting directed at buildings, facades, structures, monuments, and other architectural features.

"Canopy" means a roofed structure with at least one side open for pedestrian and/or vehicle access that typically provides protection from the sun or weather and is associated with providing goods or services.

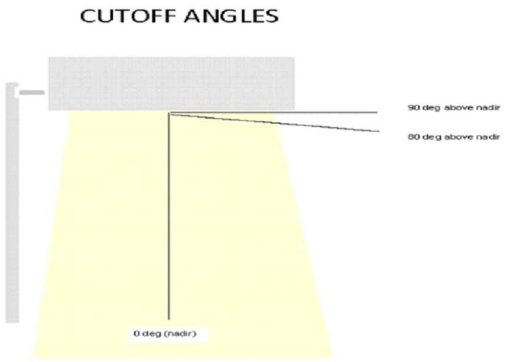
"Commercial" means any lot, however zoned, in any zoning district that does not have as its primary use a single-family or two-family residential dwelling or land used for agricultural purposes or a townhouse, house court, townhouse court, plex house, or manor house.

"Correlated color temperature (CCT)" means measured in degrees Kelvin (K), the absolute temperature of a blackbody whose chromaticity most nearly resembles that of the light source. For the purpose of this section, "CCT" is used as a simplified way to characterize the spectral properties of a light source and estimate the overall appearance of the light to the human eye.

"Floodlight" means a light designed for lighting a scene or object to a luminance greater than its surroundings.

"Foot-candle" means a unit of measure of illuminance equal to one lumen of light spread over an area of one square foot.

"Full cutoff luminaire" means a luminaire having zero intensity at or above horizontal (90°) and limited to a value not exceeding ten percent of lamp lumens at or above eighty degrees. Such luminaire is determined by a photometric test and certified by the manufacturer. See diagram below:



"Glare" means lighting entering the eye directly from luminaires or indirectly from reflective surfaces that causes visual discomfort or reduced visibility.

"IES" means Illuminating Engineering Society of North America.

"Illuminance" means the total luminous flux incident on a surface, per unit area.

"Illuminance grid plot" means a photometric report indicating the average horizontal illumination delivered to each of the squares of a gridded area illuminated by one or more luminaires.

"Initial lumen" means the measurement of a lamp's lumen output at the time the lamp is burned for the first time. As a light ages, the amount of light produced is reduced.

"Installed height" means the height above grade of the lowest light emitting point of an installed luminaire.

"ISO foot-candle plots" means a plot that graphically represents a particular luminaire's lighting pattern, in illuminance, as the light strikes a horizontal surface. It includes foot-candle calculations shown with the luminaire at various mounting heights. Contour lines are drawn through illuminance values.

"Kelvin" means a unit increment of temperature used as a color temperature scale of a light bulb (see definition of "correlated color temperature (CCT)" in this section).

"LED (light emitting diode)" means an electronic semiconductor device that emits light when an electrical current is passed through it.

"Lamp" means the source of light being emitted from a luminaire, such as a bulb, LED, and/or a refractive pane.

"Light" means electromagnetic radiation within a range of wavelengths sufficient for visual perception by the normal unaided human eye.

"Light level" has the same meaning as Illuminance.

"Light output" means luminous flux (see definition of "luminous flux" in this section). The amount of light which is emitted by a lamp or luminaire.

"Light pole" means a pole on which a luminaire is mounted.

"Light spill" means unwanted transmission of light onto adjacent areas that may affect sensitive receptors such as residential properties or ecological sites.

"Light trespass" means light that falls on property other than that of the owner of the light source.

"Lighting installation" means an arrangement of one or more luminaires including any mounting hardware, brackets, and supporting structures.

"Lighting plan" means an overall plan that describes the outdoor lighting.

"Lumen" means a unit of measure of luminous flux.

"Luminaire, light luminaire" means the complete lighting assembly (including the lamp(s), housing, ballasts, photocells, globes, reflectors or refractors, lenses, sensors and shield(s) and excluding the support assembly or pole, mounting bracket and base) consisting of one or more lamps, together with the attachment parts designed to distribute light, position and connect the lamp to the power supply.

"Luminous flux" means the power emitted from a source of electromagnetic radiation, such as a light bulb, in the form of visible light. Luminous flux is measured in lumens and is typically specified by the manufacturer for a given lamp or luminaire.

"Municipal stadium" means a structure:

1. With seats for not less than thirty thousand spectators;

2. Constructed after July 7, 1977;

3. Used primarily for sporting events and other related activities; and

4. Currently financed or was financed by general obligation bonds, revenue bonds or other indebtedness issued by the metropolitan government or the sports authority.

"Nadir" means the direction pointing directly downward from the light source of the luminaire that originates from a horizontal plane at the lowest point on the luminaire. See diagram above.

"Neon light" means colored fluorescent or gas discharge tubular which can be bent into various forms for use decoratively or as signs.

"New construction," subject to the exemption described in subsection 4 of this definition, means:

1. Site preparation for, and construction of, entirely new structures (including new poles) and subsequent replacement of such new structures or any part thereof.

2. Enlargement of any existing structure by the more restrictive of fifty percent of the area of the footprint of the building or fifty percent of the gross square footage of such existing structure (regardless of the number of other structures on the same site).

3. Adding new exterior lighting fixture(s), pole(s) or other amenity(ies) to existing structure(s) or pole(s) to which such fixture(s) were or are to be attached.

4. New construction does not mean the replacement of lamps in lighting fixtures, poles, or other amenities that existed prior to the passage of this ordinance.

"Open space and open space lot" means a parcel of land in a predominately undeveloped condition that is protected from development.

"Organized sporting event" means a prearranged sports or recreational event involving at least one group or team with a roster and schedule.

"Outdoor lighting" means light generated from an indoor or outdoor source that provides illumination to any exterior surface, building, sign, structure, device, or other outdoor feature (including land) which is visible to an observer located outdoors. For the purposes of this section, the light source inside an internally illuminated sign is not considered outdoor lighting.

"Photometric plan" means a technical plan that will indicate light distribution and the performance of lighting fixtures. It will explain the distribution of the proposed lighting and its effects on the area surrounding the site.

"Playing field" means an open outdoor field or court used for, but not limited to, playing sports such as baseball, soccer, football, tennis, volleyball, and basketball.

"Residential" means any zoning lot in a residential or agricultural zoning district that has as its primary use a single-family home or duplex or a townhouse, house court, townhouse court, plex house, or manor house.

"Street lighting" means one or more luminaires or light installations designed to illuminate a private roadway or intersection.

"Sidewalk lighting" means free-standing lighting for the illumination of sidewalks and walkways.

"Uplighting" means lighting applications which direct light above a horizontal plane.

B. Application of Provisions. This section shall be applicable to the following lighting applications:

1. Residential and Agricultural: All exterior lighting, excluding freestanding floodlights, is subject to subsection E.4 only. Freestanding floodlights shall be subject to subsections E.1.d, E.2, and E.4.

2. Commercial: For new construction only and the subsequent maintenance of all new construction: any outdoor lighting luminaire.

3. Public Utility Rental Lighting: Security lighting installed by the local public utility through a rental program is subject to Sections D, E1,E2, and F.

C. Exempt Outdoor Lighting. The following lighting is exempt from the provisions of these outdoor lighting regulations for new construction in any zoning district as of the effective date hereof, provided such activities are permitted by this title:

1. Temporary lighting for theatrical, television, performance areas and construction sites, specifically excluding upward-facing searchlights used to advertise the location of an event.

2. Lighting that is otherwise required for a life-safety purpose within the Metropolitan Code.

3. Lighting that is only erected or used under emergency conditions.

4. Lighting located within the following Downtown Code Subdistricts: Core Historic, Core, Upper Broadway, 2nd and Broadway, SoBro, except that such lighting shall be subject to the provisions of subsections D.3., D.4., and D.5. of this section.

5. Lighting located at a Municipal Stadium, except that such lighting shall be subject to the provisions of subsections D.3. and D.5. of this section. However, the provisions of D.5. shall not be applicable during an event, game, performance or other organized function at the municipal stadium.

6. Lighting on property owned by the Metropolitan Nashville Airport Authority and lighting otherwise required by the Federal Aviation Administration.

D. Prohibited Outdoor Lighting. The following lighting shall not be permitted for new construction in any zoning district as of the effective date hereof:

1. Strobe lights and laser lights, including laser light shows and aerial laser lights.

2. Flashing lights unless temporarily triggered by a security system and extinguished within thirty minutes or at a time of security response.

3. Any lighting luminaire that is construed as or confused with a traffic signal or traffic control device.

4. Lighting that contributes to or causes disabling or distracting glare onto a public roadway.

5. The use of uplighting, except when lighting a flag or other government endorsed symbol.

E. Illumination Standards:

1. Light Intensity and Uniformity:

a. The maximum illuminated surface light level at any point outdoor parking lots, automobile convenience stations and drive-in/drive-through canopies is ten foot-candles, measured horizontally at ground level.

b. The total installed initial luminaire lumens of all exterior lighting systems on the site shall not exceed the allowed total initial site lumens. The allowed total initial site lumens shall be the sum of 7,000 base lumens for all entrances and facades plus 2.5 lumens per square foot of hardscape.

c. As an alternative to compliance with the foregoing provisions of this section, an applicant may choose to comply with The International Dark Sky Association (IDA) model legislation of June 2011 (located at https://www.darksky.org/wp-content/uploads/bsk-pdf-manager/16_MLO_FINAL_JUNE2011.PDF.) except no special permit referenced in section VI.B of the model legislation shall be required. For special uses outlined in section VI.B of the model legislation that cannot comply with the technical requirements, a letter from an engineer licensed with the State of Tennessee shall be submitted to the department of codes administration confirming that the project has sustained reasonable effort to mitigate the effects of light on the environment and surrounding properties, supported by a signed statement describing the mitigation measures. Lighting zones in the model legislation shall correlate to the Transect Category for the site as designated in the Community Plans of NashvilleNext as follows:

T1 Natural	LZ-0
T2 Rural	LZ-1
T3 Suburban	LZ-2
T4 Urban	LZ-2
T5 Center D District	LZ-3
T6 Downtown	LZ-4

d. Light Direction and Control. Lighting applications shall meet the following requirements:

Lighting Application	**Maximum Inclination Above Nadir**
Architectural lighting	90 degrees
Floodlighting	90 degrees
Sidewalk lighting	90 degrees

2. Correlated Color Temperature (CCT): All lighting sources, except for public playing fields and lighting on public property necessary for the proper functioning of security cameras, must have a correlated color temperature (CCT) at or below three thousand degrees Kelvin (3000° K).

3. Permitted Hours of Outdoor Lighting:

a. Commercial: No more than fifty percent of exterior lighting shall be permitted to be illuminated, or lighting shall be dimmed by thirty percent illuminance except for one hour before start of business, during regular business hours as determined by said business, and one hour following close of business unless exempt for safety or security concerns. Motion detectors may be

used to restore lighting to one hundred percent for safety. All outdoor lighting shall be turned off during daylight hours.

b. Property Used for Governmental and Public Purposes: Any zoning lot in any zoning district used for governmental or public purposes, except for street lighting, shall comply with the permitted hours and security lighting limitations for commercial lighting zones. Outdoor lighting of the playing field of an organized sporting event on public property may remain illuminated until one hour after the conclusion of an event.

4. Light Trespass:

a. All site lighting shall be shielded so that substantially all directly emitted light falls within the property line. No illumination in excess of one-half foot-candle shall be permitted across the boundary of any adjacent residential property or the mid-line of a public street.

b. No illumination shall produce direct, incident or reflected light that interferes with the safe movement of motor vehicles on public streets. Lighting prohibited by this provision shall include, but not be limited to any light that may be confused with or construed as a traffic-control device.

c. Rope lighting shall not be used on a building, sign, or any property with non-residential zoning located adjacent to an arterial or collector street as identified on the Major and Collector Street Plan. This provision shall not apply to properties zoned as DTC.

F. Luminaire Standards:

1. Full Cutoff Requirement: All lighting regulated by this chapter shall be full cutoff.

2. Photocell/Timer Requirement for Parking Lot Lights: Parking lot lighting shall include photocells or timers as needed to regulate the hours of operation as required by this chapter and to prevent operation during daylight hours.

3. Canopy Requirement: All canopies must be skirted with a skirt depth of eight inches or greater or use other means to limit light spill to within ten feet of the area covered by the canopy.

G. Procedural Requirements:

1. Plan Submission: For land development, redevelopment and new zoning applications where outdoor lighting is proposed, prior to final approval by Metro Plans Inspection a letter from an engineer licensed with the State of Tennessee shall be submitted to the department of codes administration confirming that the plan complies with the requirements of this section. Engineer review shall be based on the following information:

a. A site plan complete with all structures, parking spaces, building entrances, traffic areas (both vehicular and pedestrian), vegetation that might interfere with lighting, and all adjacent uses. The site plan shall show and identify the location of each existing and proposed luminaire and shall specify its installed height, pole foundations, and method of mounting.

b. Iso-foot-candle plots for individual lighting installations, or ten feet by ten feet illuminance grid plots for multi-luminaire lighting installations which shall demonstrate compliance with all applicable requirements set forth in this chapter. The plots shall indicate the location of each existing and proposed luminaire, the installed height of said luminaires, and the overall light levels in foot-candles and initial lumens on the entire zoning lot and at the property lines.

c. A summary table identifying the maximum and minimum light levels in foot-candles and initial lumens for all, but not limited to, parking areas, street or building entryways, signs, street lighting, canopies, architectural lighting and walkways.

d. A description of each luminaire identified in the site plan including, but not limited to:

i. Manufacturer with website.

ii. Lamp type.

iii. Bulb type including CCT (Kelvin).

iv. Model number.

v. Photograph or catalog cut.

vi. Photometric plan.

vii. Light output in initial lumens.

viii. Shielding or glare reduction devices.

ix. Energy reduction and on/off control devices.

2. Post Approval Alterations: Post approval alterations to lighting plans or intended substitutions for approved lighting equipment shall be submitted to the zoning inspector after review by a qualified engineer at the expense of the applicant and approval prior to issuance of an use and occupancy permit, with all plan submission requirements set forth in this chapter, prior to installation.

3. Inspections: The department of codes administration shall have the right to conduct a post installation inspection to verify compliance with the requirements of this chapter and, if appropriate, to require remedial action within thirty days at the expense of the applicant.

4. Violations of this chapter shall be punishable as provided by Chapter 17.40, Article XIII of the Metropolitan Code.

5. Variances: Variances to the requirements of this chapter may be granted by the board of fire and building code appeals as provided in Chapter 2.80 of the Metropolitan Code. (Ord. BL2025-1005 § 1(Exh. A), 2025; Ord. BL2022-1088 §§ 2, 3, 2022; Ord. BL2021-974 § 1, 2021; Amdt. 2 to Ord. BL2020-535 § 2, 2021;

Ord. BL2020-535 § 2, 2021; Ord. BL2017-903 § 2, 2017; Ord. BL2013-403 § 1, 2013; Ord. 96-555 § 7.2(D), 1997)

17.28.101 Air pollution control.

In all districts, all material storage and manufacturing activities must comply with the air pollution regulations contained in Chapter 10.56 "Air Pollution Control" of the Metropolitan Code of Laws and the regulations adopted pursuant thereto by the metropolitan health department, pollution control division. (Amdt. 1 with Ord. 98-1268 § 1 (part), 1998)

17.28.102 Storage capacity of flammable and combustible liquids, liquid gases and gases.

Table 17.28.102
STORAGE CAPACITY OF FLAMMABLE AND COMBUSTIBLE LIQUIDS, LIQUID GASES, AND GASES

In the table below, all storage amounts are based on up to two acres of land. Properties of over two acres may increase the allowable storage provided in the table by an equal percentage of property in excess of two acres.

All storage of flammable liquids, liquid gases or gases must be referred to the metropolitan fire marshal for a determination that the storage will comply with the Metropolitan Fire Code, as amended, prior to issuance of a permit.

	LIQUIDS				LIQUID GASES		GASES	
	Above Ground		Below Ground					
ZONING DISTRICTS	Less than 100 F Flash Point	100-300 F Flash Point	Less than 100 F Flash Point	100-300 F Flash Point	Above Ground	Below Ground	Above Ground	Below Ground
CS, CS-NS, CS-A, CS-A-NS, CF, CF-NS	5,000 gal.	20,000 gal.	10,000 gal.	80,000 gal.	5,000 gal.	20,000 gal.	100,000 SCF	300,000 SCF
IWD, IR	10,000 gal.	30,000 gal.	Unlimited	Unlimited	30,000 gal.	50,000 gal.	300,000 SCF	Unlimited Except no more than 1 million SCF per acre within 300 feet of any more restrictive zoning district boundary
IG	Unlimited Except no more than 50,000 gal. per acre shall be stored within 300 feet of a district boundary.	Unlimited Except no more than 50,000 gal. per acre shall be stored within 300 feet of a district boundary.	Unlimited	Unlimited	Unlimited Except no storage shall be permitted within 100 feet of a district boundary.	Unlimited Except no storage shall be permitted within 100 feet of a district boundary.	Unlimited Except no storage shall be permitted within 100 feet of a district boundary.	Unlimited Except no storage shall be permitted within 100 feet of a district boundary.

(Ord. BL2019-111 § 1(Exh. A, § 38), 2020; Ord. BL2015-1153 § 15, 2015; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998)

17.28.103 Underground utilities.

A. Applicability. These standards shall apply to any application for residential development submitted to the metropolitan government for approval, wherein a new public or private street is to be constructed now or in the future, or where an existing public or private stub street, is to be extended, as follows:

1. Any application for a new or amended preliminary planned unit development;

2. Any new or amended preliminary SP plan;

3. Any new or amended preliminary urban design overlay district; or

4. Any new or revised preliminary subdivision plat; and in the case of a proposed revised preliminary plat, these provisions shall only apply to those plats deemed to be a major modification by the executive director of the metro planning department, as provided in the Subdivision Regulations.

B. Utility Services.

1. A public utility easement shall be provided along all public and private streets and alleys by the property owner.

2. All public and private utility services installed shall be underground, including the conduit (raceway) from service equipment, except as provided in subsections C, D, and F of this section. Such conduit (raceway) shall be placed underground to the curbline and/or utility right-of-way, including but not limited to, electric, telephone, communication, exterior lighting and television cable.

3. Related equipment excluding electric utility meters shall be above ground, preferably within the furnishing zone between the curb and sidewalk, within the public utility easement, or within the required street setback; electric utility meters shall be above ground, not located within the required street setback, and located on or within three feet of the serviced structure unless otherwise expressly required by the power supplier for safety and access purposes. Equipment placed in the street right-of-way shall be subject to all applicable laws and ordinances.

C. Previously Approved Streets and Utilities. Where a subdivision abuts an existing public or private street, or one shown on an approved final plan with an overlay district, recorded final plat, or on the Metropolitan Government Official Street and Alley Map, then no undergrounding shall be required of existing utilities or new utilities proposed along that existing portion of the public or private street, unless underground utilities already exist.

D. Exemptions. The following items shall be exempt from complying with the provisions of this section.

1. Any residential lot or parcel greater than forty thousand square feet in size.

2. Above-ground utility equipment installed, maintained, and utilized by utility companies for a period not to exceed thirty days in order to provide emergency utility services. The time limitation may be extended, if warranted, by the metro planning commission.

3. Utility equipment utilized exclusively for street lighting purposes.

4. Utility equipment utilized exclusively for vehicular and pedestrian traffic control purposes.

5. Utility equipment appurtenant to underground facilities and which meet the requirements of subsection (B)(3) of this section, such as service-mounted, pedestal-mounted, or pad-mounted transformers, terminal boxes, meters, cross boxes, cabinets, vaults, electronic enclosures, pedestals, flush-to-grade hand holes, splice closures.

6. Temporary utility equipment utilized or to be utilized exclusively in conjunction with construction projects, seasonal, or special event installations. Upon installation of permanent utility service, above-ground service shall be removed.

7. Fire hydrants, fireplugs, and other utility equipment utilized exclusively for firefighting purposes.

8. Overhead wires attached to the exterior surface of a building by means of a bracket or other fixture and extending from one location on the building to another location on the same building, or to an adjacent building or to the alley, without crossing any public street.

9. Antennas, associated equipment and supporting structures, used by a utility for furnishing communication services.

10. Electrical distribution lines on major streets as shown on the Major Street Plan, electrical transmission lines, or switch gear.

11. Equipment installed by the utility which should not be installed underground for engineering, safety, or environmental regulatory reasons.

12. Utility lines where severe disruption of existing improvements, diminished quality of service, or undue difficulty in repair would occur. Such exemption shall require the review and approval of the metropolitan planning commission.

13. Utility lines where an affected adjoining property owner will not consent to modification of easements. Such exemption shall require the review and approval of the metropolitan planning commission.

E. Variance. A property owner and/or developer may appeal to the board of zoning appeals indicating why undergrounding utilities are not feasible in accordance

with the procedures set forth in Section 17.40.350 of this Code. The board shall not act upon such a request without first receiving a recommendation from the metropolitan planning commission, as provided in Section 17.40.340 of this Code.

F. Alleys. Where a subdivision proposes alleys, utilities may be located above or below ground in these alleys. If utilities are located above ground, then all utilities serving the proposed lots shall be placed in the alleys, except any street light system. Utilities connecting one alley to another alley may cross a public or private street above ground.

G. Property Owner Responsibility. The property owner and/or developer installing, requesting, or requiring the construction of the improvement, and not the metropolitan government or the utility, shall be responsible for the cost of placing utility lines underground and shall make the necessary arrangements with the serving utility companies. The utility shall have no obligation to underground facilities unless and until it receives full payment for costs to do so.

H. Non-Conforming Utility Equipment. Any utility equipment approved or installed and operating prior to the effective date of the ordinance codified in this section may be maintained in its present condition and may be upgraded to conform to new technologies and regulatory requirements.

I. Existing City Franchises Not Affected. The provisions of this section do not waive any right enjoyed by the metropolitan government with respect to any franchisee, nor waive the obligations created by any franchise. If any provision of this section conflicts with any provision of a franchising agreement or ordinance, said franchise provision shall control. The provisions of this section likewise are not intended to create any conflict with the rights granted pursuant to T.C.A. §§ 65-21-201, et seq. and 65-21-107.

J. Relationship to Other Requirements. In case of conflict between the standards of this section and any other standards, rules, or regulations adopted by any other applicable metropolitan government department or agency, the provisions of this article shall control.

K. Severability. If any portion of this section is held to be invalid or unconstitutional by any court of competent jurisdiction, such holding shall not affect any other portion of this section. (Ord. BL2022-1581 § 2, 2023; Ord. BL2018-1403 § 1, 2019; Ord. BL2005-628 § 3, 2005)

17.28.104 Compliance certification.

In all districts, any request for a zoning permit for manufacturing or other uses shall be accompanied by a certification from a licensed registered professional engineer of the state which states that the proposed activity can comply with the applicable performances standards. If the zoning administrator has reasonable belief that a violation may occur despite the opinion of the engineer, then the zoning administrator, may reject the application, citing the reasons. (Amdt. 1 with Ord. 98-1268 § 1 (part), 1998)

Chapter 17.32

SIGN REGULATIONS*

Sections:

17.32.010	**Purpose and intent.**
17.32.020	**General provisions.**
17.32.030	**Rationale, definition, system for regulation and overall use.**
17.32.040	**Exempt signs.**
17.32.050	**Prohibited signs.**
17.32.060	**Permitted on-premises temporary signs.**
17.32.070	**Permanent on-premises signs.**
17.32.080	**On-premises signs in residential districts.**
17.32.090	**Community facility on-premises signs.**
17.32.100	**Informational signs for large sites.**
17.32.110	**On-premises signs—MUN, MUN-NS, MUN-A, MUN-A-NS, MUL, MUL-NS, MUL-A, MUL-A-NS, ON, OL, OG, OG-NS, OR20, OR20-NS, OR20-A, OR20-A-NS, OR40, OR40-NS, OR40-A, OR40-A-NS, CN, CN-NS, CN-A, CN-A-NS, CL-A, CL-A-NS, CS-A, CS-A-NS, SCN, SCN-NS districts.**
17.32.120	**On-premises signs—ORI, ORI-NS, ORI-A, ORI-A-NS, MUG, MUG-NS, MUG-A, MUG-A-NS, MUI, MUI-NS, MUI-A, and MUI-A-NS districts.**
17.32.130	**On-premises signs—CL, CL-NS, CS, CS-NS, CA, CA-NS, CF, CF-NS, SCC, SCC-NS, SCR, SCR-NS, IWD, IR and IG districts.**
17.32.140	**On-premises signs—DTC district.**
17.32.145	**Landmark signs.**
17.32.150	**Billboards.**
17.32.160	**Computations.**

*__Editor's note—__Ord. BL2016-309, § 5(Exh.), passed August 16, 2016, repealed the former Ch. 17.32, §§ 17.32.010—17.32.160, and enacted a new Ch. 17.32 as set out herein. The former Ch. 17.32 pertained to similar subject matter and derived from Ord. 96-555, 1997, as amended. See the Ordinance List and Disposition Table for complete derivation.

17.32.010 Purpose and intent.

A. Safety. Construct and display signs in a manner that allows pedestrians and motorists to identify, interpret and respond in an efficient and discerning manner to the following:

1. Information related to public traffic control, directions and conditions;

2. Movement of all other pedestrians and vehicles that impact traffic on a given travelway; and

3. Information other than public traffic related when displayed in a manner which is clear, concise and noncompeting with public traffic information.

B. Protection of Minors. Prohibit the location of signs that are harmful, or potentially harmful, to minors that include nudity or sexual activity through the exposure and/or exaggerated representation of genitals, buttocks and/or breasts.

C. Graphic Continuity and Aesthetics. Organize signs in a manner that reduces visual clutter and integrates signs with all other elements of the site and environs by limiting the size, location and design of signs so that pedestrians and motorists have an equal right to view buildings, structures and natural features in the foreground and background.

D. Protection of Future Public Right-of-Way. Limit the location of signs so that reasonable expansion of the public right-of-way can occur in conformance with the capital improvements program and without disturbance of existing conforming signs.

E. Activities and Services Identification. Based on a communities need to know, provide for signs that identify the marketplace and the opportunities provided by the community. (Ord. BL2016-309 § 5(Exh.), 2016)

17.32.020 General provisions.

A. Interpretation. These sign regulations are intended to complement the various codes and ordinances of the metropolitan government. Wherever there is inconsistency between these sign regulations and other regulations of the metropolitan government, the more stringent shall apply. Reference is made but not limited to the following regulations:

1. Building code;

2. Electrical code;

3. Major street plan;

4. Zoning title and performance standards;

5. Metropolitan Code Section 13.08.050 (sign in public right-of-way);

6. Metropolitan Code Section 12.48.090A (Bus benches and signs);

7. Metropolitan Code Section 17.04.060 (specified anatomical areas);

8. Historic district regulations;

9. State of Tennessee Outdoor Advertising Regulations;

10. Traffic and parking code.

B. Design, Construction and Maintenance. All signs shall be designed, constructed and maintained in accordance with the following standards:

1. Compliance with Codes. All signs must comply with all the provisions of the Metropolitan Code.

2. Permanency Required. All signs shall be constructed of permanent materials and shall be permanently affixed to the ground or building unless otherwise exempted in this chapter.

3. Maintenance. All signs shall be maintained in good surface and structural condition, with all panels in place, complete, and intact, and in compliance with all building and electrical codes. (Ord. BL2023-1858 § 1, 2023; Ord. BL2016-309 § 5(Exh.), 2016)

17.32.030 Rationale, definition, system for regulation and overall use.

A. Rationale. The word "sign" is chosen to signify all nonverbalized communication in public viewed areas because of its traditional use. The word "graphic" is synonymous with sign and the two may be used interchangeably within the context of this sign code. An on-premises sign shall not be a principal use.

B. Definition. The definition of "sign" as provided hereinafter is all-inclusive. A sign is any writing (including letter, work or numeral), pictorial representation (including illustration or decoration); emblem (including device, symbol or trademark); flag (including banner or pennant); inflatable structure; or any other figure of similar character, which is:

1. A structure or any part thereof, or is attached to, painted on, or in any other manner represented on a building or other structure; and

2. Used to announce, direct attention to, or advise.

C. System for Regulation. Regulation of signs is based on size, location, method of attachment, duration and design/lighting. The following distinctions apply to the regulation of signs:

1. Regulation based on size;

2. Regulation based on location;

3. Regulation based on method of attachment:

a. On-premises ground sign,

b. On-premises building sign;

4. Regulation based on duration:

a. On-premises temporary sign,

b. On-premises permanent sign;

5. Regulation based on design/method of lighting:

a. Illuminated sign,

b. Nonilluminated sign.

Regulations apply to signs with respect to specific permissiveness and provisions in each use district or group of related districts. Regulations are generally more restrictive in residential districts than in commercial and industrial. Additional regulations may further apply to areas of special design control such as, but not limited to:

1. Airport district;

2. Historic districts;

3. Floodplain districts;

4. Redevelopment districts;

5. Urban design overlay districts.

D. Overall Use. The use of on-premises temporary signs is permitted wherever there is a need to display information for a limited period of time. The use of permanent on-premises ground or on-premises building signs is permitted wherever there is a need to display information as provided for in this chapter, where there is a principal use. (Ord. BL2016-309 § 5(Exh.), 2016)

17.32.040 Exempt signs.

The following on-premises signs are exempt from the operation of these sign regulations provided they are not placed or constructed to be in violation of Section 17.20.180, Visibility, or so as to create a hazard of any kind through the obstruction of vision by motorists and pedestrians.

A. Within nonresidential districts, signs that are displayed for the safe direction of the public on the property, such as signs which identify entrances, exits, drive-thru windows, or signs of a similar nature. Such signs shall not exceed six square feet in area, provided that such sign, or combination of such signs, does not constitute a sign prohibited by Section 17.20.180 of this title and shall adhere to the height and setback provisions for permanent, on-premises ground signs;

B. Signs necessary to promote health, safety and welfare, and other regulatory, statutory, traffic control or directional signs erected on public property with permission as appropriate from the state, the United States of America, or the Metropolitan Government of Nashville and Davidson County;

C. Legal notices and official instruments;

D. Holiday lights and decorations;

E. Public warning signs to indicate the dangers of trespassing, swimming, animals or similar hazards for nonresidential uses;

F. Works of art that do not constitute advertising;

G. Signs carried by a person when the person does not receive any financial compensation;

H. In districts other than commercial and industrial districts, non-commercial flags of eight square feet or less in size when mounted on permanent poles attached to the ground or building;

I. In commercial and industrial districts flags of eight square feet or less in size that are mounted on individual poles. The poles shall be separated by a minimum distance of twenty-five feet, except that four poles may be clustered at one location per street frontage. If the option to cluster is exercised no other poles shall be erected along that street frontage. The flags may contain a logo and shall be subject to the height and front setback requirements for the respective district;

J. Temporary signs which do not exceed twelve square feet in area, up to 120 days prior to an election, and removed within seven days after the election;

K. Flags and bunting, up to thirty days prior to and removed within seven days following the celebration, convention or commemoration type event;

L. Temporary displays and signs behind storefront windows which are not affixed permanently to the glass, nor intended for permanent display, and non-illuminated, provided that such temporary signs do not cover more than twenty-five percent of the total surface area of the storefront window;

M. Memorial signs or tablets when cut into any masonry surface or when constructed of bronze or other incombustible materials and attached to the surface of a building;

N. Signs incorporated into machinery or equipment by a manufacturer or distributor, such as those customarily affixed to vending machines, newspaper racks, telephone booths, fee collection boxes, and gasoline pumps;

O. In residential districts, any non-commercial sign of a type described below which does not exceed one square foot in area:

1. A sign located on the front of house itself, one sign per lot,

2. A mailbox sign (one sign per dwelling unit).

P. Temporary or permanent signs identifying safety or traffic-control measures on private property, such as "stop," "yield," and similar signs, the face of which meet the standards of the "Manual for Uniform Traffic Control Devices" and which do not exceed six square feet in area per sign;

Q. Temporary signs which do not exceed six square feet in area, are limited to one per lot, which are erected no sooner than four days before any yard sale event, and are removed within two days after the event;

R. Temporary signs on active construction sites in residential districts which do not exceed six square feet in area and six feet in height, which are limited to one per lot, and which are installed after issuance of a building permit and removed prior to the issuance of a certificate of compliance. If a sign is displayed pursuant to this section, but construction is discontinued for a period of more than sixty days, the message shall be removed, pending continuation of construction activities;

S. Temporary signs on active construction sites in nonresidential districts which are equal to or less than thirty-two square feet in area and ten feet in height, which must be spaced at least one hundred feet apart, and which are installed after issuance of a building permit and removed prior to the issuance of a certificate of compliance. Construction-related signs that are thirty-two square feet or more in area and ten feet in height must comply with the district requirements for a permanent sign. If a sign is displayed pursuant to this section, but construction is discontinued for a period of more than sixty days, the message shall be removed, pending continuation of construction activities;

T. Temporary signs on real property that is for sale or will be for sale within thirty days, in residential districts which do not exceed six square feet in area per sign, which do not exceed six feet in height for ground signs, and which are limited to one ground sign per street frontage and one building sign with wall attachment per dwelling unit;

U. Temporary signs on real property that is for sale or will be for sale within thirty days, in nonresidential districts which are less than thirty-two square feet in area per sign, which do not exceed ten feet in height for ground signs, and which are limited to one ground sign per street frontage and one building sign with wall attachment per building facade if the entire building is for sale or lease or one building sign with wall attachment per leasable area if subunits of the building are for lease or rent;

V. Temporary signs, less than thirty-two square feet in area and limited to one sign on the site of an event, may be erected no sooner than fourteen days before an event held by a public or nonprofit organization, and must be removed within seven days after the event;

W. An on-premises ground or on-premises building sign oriented toward a drive-through lane. The total sign area shall not exceed sixty square feet and a maximum height of ten feet. The sign shall be located within thirty feet of the point at which orders are taken from the motor vehicle;

X. Signs located within a building that are not oriented so as to be viewed from the exterior of the building. Signs located within a ten acre lot, that are not visually oriented toward a public right-of-way;

Y. Signs located on athletic fields, if oriented toward the field of play;

Z. Temporary signs to be erected no longer than seventeen days prior to an auction and to be removed within twenty-four hours after an auction. Any such sign

shall not exceed twenty-four square feet in size in residential districts and thirty-two square feet in all other districts.

AA. In commercial districts, inflatable moving figures made to resemble the human form used to draw attention to an event or business, provided such inflatable figures are attached to a fixed base, do not exceed twenty feet in height from the ground, are not located within one thousand feet of a residential structure, are only used/displayed during daylight hours, and area kept in a good state of repair with a properly-functioning blower motor and material that is not worn or tattered. In addition, a maximum of one inflatable figure shall be allowed on any parcel regardless of its size or the number of businesses located or operating on that same parcel. The foregoing exemption for inflatable moving figures shall not apply for commercial properties with frontage along Lebanon Road, McGavock Pike, Elm Hill Pike, or Donelson Pike.

BB. In the agricultural districts, signs erected during the time that agricultural products are for sale that do not exceed sixteen square feet in area, are not illuminated, and are not a prohibited sign as set forth in Section 17.32.050. (Amdt. 1 to Ord. BL2016-309 § 5, 2016; Ord. BL2016-309 § 5, 2016)

17.32.050 Prohibited signs.

It is unlawful to erect, cause to be erected, maintain or cause to be maintained, any sign not expressly authorized by, or exempted from, this title. Any prohibited sign(s) may be removed by the zoning administrator or his designee after notice to the property owner or occupant to remove such sign(s) within three days. The following signs are expressly prohibited:

A. Signs that are in violation of any other code adopted by the metropolitan government as stipulated in Section 17.32.020;

B. Signs or sign structures that interfere in any way with free use of any fire escape, emergency exit or standpipe, or that obstruct any window to such an extent that light or ventilation is reduced to a point below that required by any provision of this title or other ordinance of the Metropolitan Code;

C. Signs that resemble any official sign or marker erected by any governmental agency, or that by reason of position, shape or color, would conflict with the proper functioning of any traffic sign or signal, or be of a size, location, movement, content, color or illumination that may be reasonably confused with or construed as, or conceal, a traffic-control device;

D. Signs that contain any lighting or control mechanism that causes unreasonable interference with radio, television or other communication signals;

E. Signs placed upon benches, bus shelters or waste receptacles, except as may be authorized pursuant to Metropolitan Code Section 12.48.090;

F. Signs erected on public property, or on private property (such as private utility poles) located on public property, other than signs erected by public authority for public purposes or as otherwise authorized by the metropolitan council;

G. 1. Signs with any copy, graphics, or digital displays that change messages by electronic or mechanical means, where the copy, graphics, or digital display does not remain fixed, static, motionless, and non-flashing for a period of eight seconds with all copy changes occurring instantaneously without any special effects.

2. Signs with any copy, graphics, or digital displays that change messages by electronic or mechanical means, other than tri-face billboards, shall not be permitted in the CA, CA-NS, CS, CS-NS, CF, CF-NS SCR, SCR-NS, IWD, IR and IG districts unless the following distance requirements are satisfied, based upon the overall height of the sign:

a. Signs four feet or less in height shall not be less than one hundred feet from any agriculturally or residentially-zoned property.

b. Each additional foot in height, or portion thereof, above four feet shall be setback an additional twenty-five feet from any agriculturally or residentially-zoned property. For example, a sign between five and six feet in height shall not be less than one hundred fifty feet from any agriculturally or residentially-zoned property.

3. Sign display areas with varying light illumination and/or intensity, blinking, bursting, dissolving, distorting, fading, flashing, oscillating, rotating, scrolling, sequencing, shimmering, sparkling, streaming, traveling, tracing, twinkling, simulated movement, or convey the illusion of movement.

4. Free-standing and wall-mounted digital display billboards, including the conversion of existing billboards to digital billboards, less than two thousand feet apart. The spacing distance shall be measured along the roadway that the billboard is located and shall be measured from billboard to billboard regardless of the side of the roadway on which the billboard is located, the billboard's orientation on that roadway or the public street classification.

5. Notwithstanding the foregoing provisions of this subsection, any digital billboards not in compliance with the applicable provisions of Section 17.32.150 are also prohibited.

6. Notwithstanding the foregoing provisions of this subsection signs with any copy, graphics, or digital displays that change messages by electronic or mechani-

cal means shall not be permitted in the CS zoning district for uses classified as Automobile repair, Automobile sales, used; Car wash and Vehicular sales and services limited.

H. 1. Video, continuous scrolling messages, and animation signs, except in the commercial attraction (CA and CA-NS) districts.

2. LED message boards and digital display signs in the AG, AR2a, R, R-A, RS, RS-A, RM, RM-NS, RM-A, RM-A-NS, MUN, MUN-NS, MUN-A, MUN-A-NS, MUL, MUL-NS, MUL-A, MUL-A-NS, MUG, MUG-NS, MUG-A, MUG-A-NS, MUI, MUI-NS, MUI-A, MUI-A-NS, MHP, ON, OL, OG, OG-NS, OR20, OR20-NS, OR20-A, OR20-A-NS, OR40, OR40-NS, OR40-A, OR40-A-NS, ORI, ORI-NS, ORI-A, ORI-A-NS, CN, CN-NS, CN-A, CN-A-NS, CL, CL-NS, CL-A, CL-A-NS, CS- A, CS-A-NS, SCC, SCC-NS, SCN, and SCN-NS districts, provided that this prohibition shall not apply to signs existing as of January 1, 2014, that are located on property zoned MUI-A or MUI-A-NS along an arterial street within the urban zoning overlay district and have a surface area in excess of 1,200 square feet.

I. Signs that incorporate projected images, emit any sound that is intended to attract attention, or involve the use of live animals;

J. Signs that emit audible sound, odor or visible matter such as smoke or steam;

K. Signs, within ten feet of public right-of-way or one hundred feet of traffic-control lights, that contain red or green lights that might be confused with traffic-control lights;

L. Signs that are of such intensity or brilliance as to cause glare or impair the vision of any motorist, cyclist or pedestrian using or entering a public way;

M. Blank on-premises temporary signs;

N. Strings of incandescent light bulbs with wattage in excess of ten watts per bulb that are used on commercially developed parcels for commercial purposes other than temporary holiday decorations;

O. Signs, commonly referred to as wind signs, consisting of one or more flags which are not otherwise exempted, pennants, ribbons, spinners, streamers or captive balloons which are less than ten feet in their greatest dimension, or other objects or material fastened in such a manner as to move upon being subjected to pressure by wind;

P. Signs that are painted, pasted, or printed on any curbstone, flagstone, pavement, or any portion of any sidewalk or street, except house numbers and traffic-control signs;

Q. Signs attached to, suspended from or painted on any motor vehicle, trailer or other equipment in:

1. Residential Districts. Signs attached to, suspended from or painted on any motor vehicle, trailer or other equipment, including but not limited to trucks, recreational vehicles, boats, automobiles, truck campers, travel trailers, mobile homes, motorcycles, lawn implements, implements of husbandry, etc., parked on any street or on any private or public property and which are marked to attract the attention of the public for the purpose of selling, advertising, displaying or other commercial purposes are prohibited.

2. Nonresidential Districts. All motor vehicles, trucks, trailers and other types of equipment which have company logos or business signs attached to, suspended from or painted thereon and which are regularly parked on the premises shall be confined to the portion of the property behind the front line of the building except while being actively loaded or unloaded, unless parking on the property behind the front line is not possible, in which event such vehicles, trailers and equipment shall be parked in as remote a location as possible away from the public streets and public view. The parking of such vehicles to augment tenant identification or to attract the attention of the public for the purpose of selling, advertising, displaying, demonstrating or for any other purpose related to the promotion of business or other activity on the premises is prohibited;

R. Signs displaying copy that is harmful to minors as defined by this title;

S. Portable signs as defined by this title. (Ord. BL2019-111 § 1(Exh. A, §§ 39, 40), 2020; Ord. BL2016-309 § 5(Exh.), 2016)

17.32.060 Permitted on-premises temporary signs.

On-premises temporary signs are allowed throughout Nashville and Davidson County, subject to the restrictions imposed by this section and other relevant parts of this title.

A. Sign Types Allowed. A temporary sign may be an on-premises ground or on-premises building sign, but may not be constructed of or operated by electrical, electronic or mechanical parts. Banners are defined as being temporary signs.

B. Removal of Illegal On-Premises Temporary Signs. Any temporary sign not complying with the requirements of this section is illegal and subject to immediate removal.

C. Restrictions on On-Premises Temporary Signs. Any on-premises temporary sign may display any message so long as it is:

1. Not harmful to minors as defined by this title;

2. Posted during, or up to thirty days prior to, a period in which:

a. An owner, either personally or through an agent, is actively attempting to sell, rent or lease the property on which the sign is located,

b. A business in a nonresidential district is opening, changing use, changing location, or going out of business.

Such message may be displayed for a period of not more than sixty days or until installation of permanent signs, whichever shall occur first;

3. Posted during, or up to thirty days prior to, a period in which: the property is hosting an event such as a fair, carnival, circus, revival, sporting event, flea market, or any public, charitable, educational or religious event or function. Such message shall be erected no sooner than fourteen days before the event, and removed within seven days after the event;

4. Posted during, or up to thirty days prior to, a period in which a vacant lot, or a temporary structure, such as a tent, is being used to offer goods for sale. Such message may be displayed for a period not exceeding thirty days, and not more than once a quarter on a yearly basis.

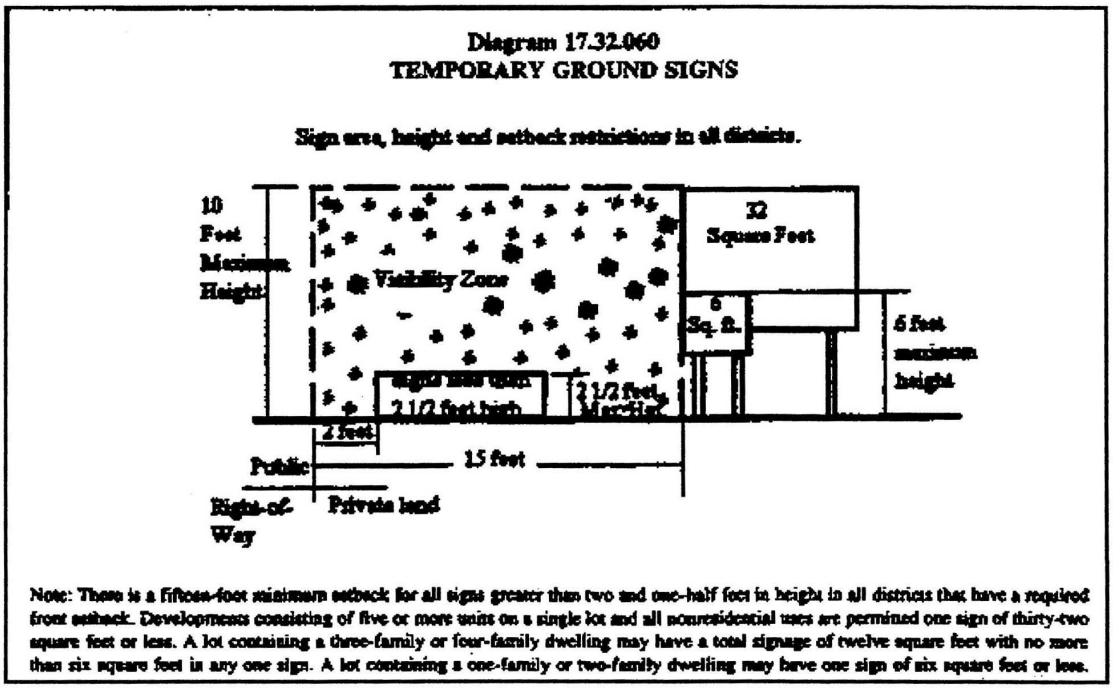
D. Open Space Requirements for On-Premises Temporary Signs. On-premises temporary signs shall comply with the front yard requirements, as illustrated in Diagram 17.32.060 and shall not be permitted in a required side or rear setback.

E. Permissible Size, Height and Number.

1. Single-Family and Duplex Residences. Any lot occupied by a one-family or two-family residence may display one on-premises temporary sign with a maximum sign area of six square feet and a maximum height of six feet.

2. Triplex and Quadruplex Residences. Any lot occupied by a three-family or four-family residence may display not more than two on-premises temporary signs with an aggregate sign area of not more than twelve square feet. No individual sign shall exceed six square feet in area nor six feet in height.

3. All Other Uses. All other lots may display one square foot of on-premises temporary signage per ten feet of frontage to a maximum of thirty-two square feet. Lots with frontage on more than one side may apply this provision to one additional side. No on-premises sign shall exceed ten feet in height.



(Ord. BL2016-309 § 5(Exh.), 2016)

17.32.070 Permanent on-premises signs.

A. Sign Types Allowed. A permanent on-premises sign may be permitted as a ground or building sign subject to the restrictions imposed by this section and other relevant restrictions imposed by this title.

B. Setback and Height Restrictions. The maximum height and street setback requirements for signs in nonresidential and mixed-use districts shall be as established by Figure 17.32.070, Permanent Ground Signs.

C. Sign construction materials. All permanent on-premises signs shall be constructed of a rigid, weatherable material such as hard plastic, wood, MDO plywood, aluminum, steel, PVC, and/or Plexiglas. On-premises permanent signs shall not be constructed of non-rigid materials including, but not limited to, vinyl, fabric, canvas, or corrugated plastic. The provisions of this subsection shall not apply to approved, permitted canopies, awnings, and porticoes.

D. Guidance for the Use of Signs.

1. An on-premises sign is for the purpose of conveying information in clear, concise, safe and compatible units to general motorists and pedestrians on travelways and within each site.

2. Size, location, method of attachment and design/lighting are regulated in general based on districts and the type of activity therein. Permanent on-premises signs are subject to the common signage plan requirements.

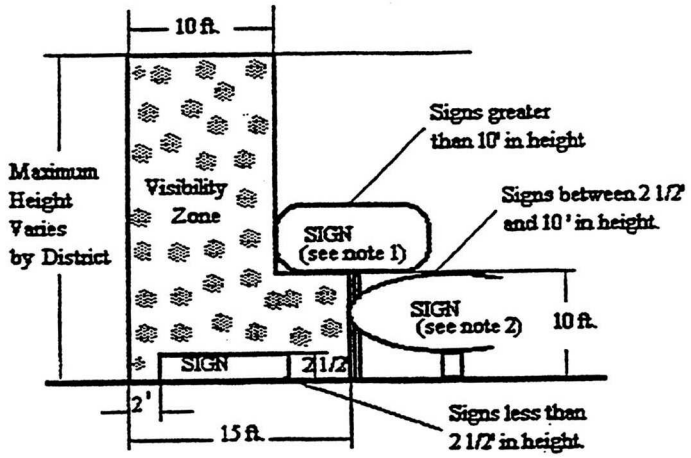
3. On-premises building signs shall not extend above the roof line of the structure. On-premises wall signs shall not extend above the top of the wall or parapet more than twenty-five percent of the height of such sign, to a maximum of eighteen inches for a solid panel sign, or fifty percent of the height of the letter for individual mounted letters. The above restrictions shall not apply to the commercial amusement (CA and CA-NS) districts provided that the sign(s) is not readily visible from a public street external to the development or residentially zoned property abutting the subject property.

4. No permanent on-premises ground sign may be located in a required rear setback.

5. With regard to multiple frontage (frontage on more than one street) the amount of on-premises ground signage is computed by adding all of the frontage along each street and applying the total to the table under the appropriate district; the total on-premises ground sign area that is oriented toward a particular street may not exceed the portion of the lot's total ground sign area allocation that is derived from that street. No on-premises ground sign on one street frontage on the same lot shall be closer than one hundred feet to an on-premises sign fronting on another street, computed as the sum of distance measured continuously along the rights-of-way through a common point or points. On-premises ground signs in excess of two hundred eighty-eight square feet shall require even greater spacing as specified under each district or group of districts. On-premises building signage does not require additional computation for multiple frontage since the signage area is based solely on number of principal buildings, number of occupants and percent of building facade.

6. A single tenant or multitenant sign may be considered an on-premises sign when located within the boundaries of the same approved master development plan or unified plat of subdivision.

Figure 17.32.070
PERMANENT GROUND SIGNS



Setback restrictions in nonresidential and mixed-use districts.
Note 1: There is a minimum ten foot setback for signs with more than ten feet of ground clearance in all districts which require a front setback.
Note 2: There is a minimum fifteen foot setback for signs with more than two and one-half feet but less than ten feet of ground clearance in all districts that require a front setback.

(Ord. BL2019-111 § 1(Exh. A, § 41), 2020; Ord. BL2016-309 § 5(Exh.), 2016)

17.32.080 On-premises signs in residential districts.

Permanent on-premises ground and on-premises building signs at the entrance to a residential development are permitted subject to the following restrictions:

A. Each residential development containing three through fifteen dwelling units and approved under one plat shall be permitted one on-premises identification sign, with a maximum size of six square feet, at the development entry from a public street. The provisions of subsection B of this section, subdivisions (4), (5), (6) and (7) shall apply.

B. Each residential development containing at least sixteen units and approved under one plat shall be permitted up to thirty-two square feet per development entry, to a maximum of three, from a public street. The on-premises signage at each development entry may be one of the following:

1. A double-sided sign located perpendicular to the public street and containing up to thirty-two square feet for the one sign face;

2. A single-sided sign located parallel to the public street and containing up to thirty-two square feet for the one sign face. Displaying a sign on the opposite face, if the total number permits, will be counted as one additional sign;

3. A flared wall, or similar, to which two single-sided signs are attached or imbedded and each sign does not exceed sixteen square street;

4. The leading edge or face of the sign or any building or other structure to which the sign is attached must be set back from the public right-of-way a minimum of fifteen feet;

5. No residential identification sign may exceed six feet in height;

6. All residential identification signs may be illuminated by direct and steady means only;

7. Each residential identification sign shall be maintained perpetually by the developer, sign owner, owners' association or some other person who is legally accountable under an approved maintenance agreement. Signs that are not maintained shall be removed by the developer or owner.

C. One flat-mounted on-premises building sign of a maximum of thirty-two square feet in area, for each street frontage, may be placed on the street facing facade of a building that contains a minimum of sixteen units, provided that it is:

1. Illuminated by direct and steady means only;

2. Does not extend more than six inches from the facade of the building. (Ord. BL2016-309 § 5(Exh.), 2016)

17.32.090 Community facility on-premises signs.

A. Signs located at community facilities in residential districts shall conform to the size provisions applicable to the ON district. The maximum height of a ground sign shall be eight feet; the minimum street setback shall be fifteen feet; the sign shall not encroach required side setbacks of the district; and only one such ground sign shall be permitted per street frontage.

B. All Other Districts. Community facilities shall be permitted the signage of the district occupied by the community facility. (Ord. BL2016-309 § 5(Exh.), 2016)

17.32.100 Informational signs for large sites.

A. Sites larger than five acres shall be allowed an additional informational sign, in addition to other on-premises signs. An informational sign may convey non-commercial information, directions or instructions for the safety, convenience and need to know for the use, or restriction of use, of a lot on a permanent basis.

B. All signs of this nature shall be designated on the common signage plan for the property.

C. The provisions of Section 17.32.050, Prohibited signs, shall apply to prohibited signs.

D. Sign Types Allowed. A sign of this nature may be a ground or building sign, and shall be permitted in addition to other on-premises signs.

E. Permissible Number, Size and Height. The following standards shall apply to all such signs except for those utilized in the commercial attraction (CA and CA-NS) districts when not readily visible from a public street external to the development or residentially zoned property abutting the subject property:

1. Developments with improved land area of five acres or more shall be permitted two informational signs per five acres of improved area. Any fractional values shall be discarded.

2. The maximum size of any one informational sign shall be thirty-two square feet.

3. The maximum height of any informational ground sign above grade shall be ten feet.

4. Copy height shall be limited to a maximum of six inches.

5. Copy may include one logo per face provided that the logo does not exceed twenty percent of the total sign area.

F. Required Setbacks.

1. An informational sign shall not be located within fifty feet of a side or rear lot line.

2. An informational sign shall not be located within one hundred feet of a front lot line. (Ord. BL2019-111 § 1(Exh. A, § 42), 2020; Ord. BL2016-309 § 5(Exh.), 2016)

17.32.110 On-premises signs—MUN, MUN-NS, MUN-A, MUN-A-NS, MUL, MUL-NS, MUL-A, MUL-A-NS, ON, OL, OG, OG-NS, OR20, OR20-NS, OR20-A, OR20-A-NS, OR40, OR40-NS, OR40-A, OR40-A-NS, CN, CN-NS, CN-A, CN-A-NS, CL-A, CL-A-NS, CS-A, CS-A-NS, SCN, SCN-NS districts.

A. Based on whether an on-premises sign is an on-premises ground or on-premises building sign, refer to the subsection under the appropriate type for computation of sign area.

B. All on-premises ground and on-premises building signs must be approved under an overall signage plan.

C. The number, area, spacing and height of permanent on-premises ground signs shall be determined according to Table 17.32.110, except that land uses classified as Car wash shall be further restricted as specified in Section 17.16.070.

Table 17.32.110

Lot Frontage in Feet	Max. No. of Signs	Max. Area of Any One Sign in Sq. Ft.	Max. Total Area of All Signs in Sq. Ft.	Min. Side Setback (See Note 1)	Min. Setback to Other Ground Signs on the Same Lot	Max. Height in Feet
Less than 50	1	32	32	2 ft.	NA	20 ft.
50—99	1	40	40	2 ft.	NA	20 ft.
100—199	1	48	48	10 ft.	NA	20 ft.
200—299	1	64	64	25 ft.	NA	20 ft.
300—399	2	96	96	25 ft.	100 ft.	20 ft.
400—499	3	128	128	25 ft.	100 ft.	20 ft.
500—599	3	160	160	25 ft.	100 ft.	20 ft.
600 or more	3	192	192	25 ft.	100 ft.	20 ft.

Note 1: Where a side lot line abuts a street or a controlled access highway the minimum side setback shall be ten feet.

D. Each multitenant principal building may display not more than two on-premises building signs with a combined sign area of not more than thirty-two square feet.

E. In addition to the principal building signage each occupant of a multiple occupancy complex may display not more than two on-premises building signs on any exterior viewed portion of the complex that is part of the occupant's unit. The total sign area shall not exceed fifteen percent of the facade area for the public entry side or a maximum of one hundred ninety-two square feet, whichever is less. Occupants with a second public entry may divide their permitted signage, but a signage bonus is not given for an additional entry.

F. Where there is only one occupant of a principal building, or where the owner of a multitenant building so chooses, not more than two on-premises building signs may be displayed on any exterior viewed portion of the building, not to exceed a combined sign area equal to fifteen percent of the facade area upon which the sign(s) is displayed to a maximum of one hundred ninety-two square feet. If the owner of a multitenant building chooses this option then no building signage shall be allowed under subsection E of this section. (Ord. BL2019-111 § 1(Exh. A, § 43), 2020; Ord. BL2016-309 § 5(Exh.), 2016)

17.32.120 On-premises signs—ORI, ORI-NS, ORI-A, ORI-A-NS, MUG, MUG-NS, MUG-A, MUG-A-NS, MUI, MUI-NS, MUI-A, and MUI-A-NS districts.

A. Based on whether an on-premises sign is an on-premises ground or on-premises building sign, refer to the subsection under the appropriate type for computation of sign area.

B. All on-premises ground and on-premises building signs must be approved under an overall signage plan.

C. The number, area, spacing and height of permanent on-premises ground signs shall be determined according to Table 17.32.120, except that land uses classified as Car wash shall be further restricted as specified in Section 17.16.070.

Table 17.32.120

Lot Frontage in Feet	Max. No. of Signs	Max. Area of Any One Sign	Max. Total Area of All Signs	Min. Side Setback (See Note)	Min. Setback to Other Ground Signs on the Same Lot	Max. Height in Feet
Less than 50	1	48 sq. ft.	48 sq. ft.	10 ft.	NA	20 ft.
50—99	1	64 sq. ft.	64 sq. ft.	15 ft.	NA	20 ft.
100—199	1	96 sq. ft.	96 sq. ft.	25 ft.	NA	20 ft.
200—299	1	128 sq. ft.	128 sq. ft.	50 ft.	NA	20 ft.
300—399	2	160 sq. ft.	160 sq. ft.	50 ft.	100 ft.	20 ft.
400—499	2	192 sq. ft.	192 sq. ft.	50 ft.	100 ft.	20 ft.
500 or more	3	288 sq. ft.	288 sq. ft.	50 ft.	100 ft.	20 ft.

Note: Where a side lot line abuts a street or a controlled access highway the minimum side setback shall be ten feet.

D. Each multitenant principal building may display not more than two on-premises building signs with a combined sign area of not more than forty-eight square feet.

E. In addition to the principal building signage each occupant of a multiple occupancy complex may display not more than two on-premises building signs on any exterior viewed portion of the complex that is part of the occupant's unit (not including common or jointly owned area). The total on-premises sign area shall not exceed fifteen percent of the facade area of such exterior portion.

F. Where there is only one occupant of a principal building, or where the owner of a multitenant building so chooses, not more than two on-premises building signs may be displayed on any exterior viewed portion of the building, not to exceed a combined sign area equal to fifteen percent of the facade area upon which the sign(s) is displayed to a maximum of two hundred eighty-eight square feet. If the owner of a multi-tenant building chooses this option then no building signage shall be allowed under subsection E of this section. (Ord. BL2019-111 § 1(Exh. A, § 44), 2020; Ord. BL2016-309 § 5(Exh.), 2016)

17.32.130 On-premises signs—CL, CL-NS, CS, CS-NS, CA, CA-NS, CF, CF-NS, SCC, SCC-NS, SCR, SCR-NS, IWD, IR and IG districts.

A. Based on whether an on-premises sign is an on-premises ground or on-premises building sign, refer to the subsection under the appropriate type for computation of sign area.

B. Any lot may have some or all of its permitted area for on-premises ground signage transferred to on-premises building signage and the individual on-premises sign size increased accordingly.

C. All on-premises ground and on-premises building signs must be approved under an overall signage plan.

D. The number, area, spacing and height of permanent on-premises ground signs shall be determined according to Table 17.32.130.D, except that land uses classified as Automobile repair, Automobile sales, used; Car wash and Vehicular sales and services limited shall be further restricted as specified in Section 17.16.070.

Table 17.32.130D

Lot Frontage in Feet	Max. No. of Signs (See Note 2)	Max. Area of Any One Sign	Max. Total Area of All Signs	Min. Side Setback (See Note 1)	Min. Setback to Other Ground Signs on the Same Lot	Max. Height in Feet (See Note 2)
Less than 50	1	150 sq. ft.	150 sq. ft.	2 ft.	NA	40 ft.
50—99	1	198 sq. ft.	198 sq. ft.	2 ft.	NA	40 ft.
100—199	1	288 sq. ft.	288 sq. ft.	10 ft.	NA	40 ft.
200—299	2	288 sq. ft.	288 sq. ft.	10 ft.	NA	40 ft.
300—399	2	384 sq. ft.	384 sq. ft.	25 ft.	100 ft.	40 ft.
400—499	3	480 sq. ft.	480 sq. ft.	25 ft.	100 ft.	40 ft.
500 or more	3	480 sq. ft.	576 sq. ft.	25 ft.	100 ft.	40 ft.

Note 1: Where a side lot line abuts a street or a controlled access highway the minimum side setback shall be ten feet.

Note 2: The CL and CL-NS districts any lot within one thousand feet of a controlled access highway interchange may have one additional on-premises ground sign of not more than two hundred eighty-eight square feet with a maximum height of fifty feet provided:

a. The additional on-premises ground sign is oriented to the controlled access highway and adheres to all other provisions of this title; and

b. The other on-premises ground sign is oriented to the street of principal access, is spaced at least one hundred feet from any other ground sign on the lot, and is restricted to the maximum height permitted in the CS and CS districts; and

c. Further, that up to forty square feet of the ground sign oriented to the street of principal access may be transferred to this sign area when noted on the signage plan; and

d. This additional on-premises sign is available only at interchanges when a highway logo sign is not present.

Note 3: In addition to the number of ground signs permitted by Table 17.32.130D. [formerly 8.13], properties directly abutting a controlled access highway may install an additional on-premise ground sign along the frontage of that highway at the rate of one sign per one thousand feet of highway frontage. Such signs shall be spaced a minimum of one thousand feet apart. A sign oriented to a controlled access highway may be as large as the greater of (1) the maximum size of a sign otherwise permitted by Table 17.32.130D, or (2) the maximum size of a sign otherwise permitted by Table 17.32.130D as determined by substituting "Controlled Access Highway Footage Frontage in Feet," in lieu of "Lot Frontage in Feet." The maximum height of a highway oriented sign shall be, fifty feet as measured from the average grade of the sign foundation, or thirty feet above the finished elevation of the nearest travel lane of the highway, whichever is greater. In the commercial attraction district, the maximum area of any one sign shall be nine hundred square feet, the maximum total area of all signs shall be two thousand square feet, and the maximum height of a highway oriented sign shall be eighty feet as measured from the average grade of the sign foundation, or sixty feet above the finished elevation of the nearest travel lane of the highway, whichever is greater.

E. On-Premises Ground Signs Based on Ground Floor Area. The chart below offers an option to utilizing frontage to calculating the square footage for one on-premises ground sign to be located only at the primary entrance. On-premises ground signs located on other frontage must be determined by Table 17.32.130D.

Table 17.32.130E

Ground Floor Area	Allowable Square Footage per 1,000 Square Feet of Ground Floor Area
22,000—29,999	6
30,000—49,999	5
50,000—99,999	4
100,000 or more	3

No on-premises ground sign whose display surface area is generated by ground floor area shall exceed four hundred eighty square feet in area.

F. On-Premises Building Signs. On-premises building signs shall be subject to the following restrictions:

1. Each facade of a principal building shall be restricted to a maximum building signage of fifteen percent of the area of the facade.

2. This area may be increased by transferring all or part of the permitted on-premises ground sign area to on-premises building signage. A twenty percent bonus of the amount transferred may also be applied to the total on-premises building signage. (Ord. BL2019-111 § 1(Exh. A, §§ 45, 46), 2020; Ord. BL2016-309 § 5(Exh.), 2016)

17.32.140 On-premises signs—DTC district.

See Section 17.37 (Downtown Code) for standards on signage within the DTC district. (Ord. BL2016-309 § 5(Exh.), 2016)

17.32.145 Landmark signs.

A. A landmark sign must meet all of the following criteria:

1. Materials, technology, and design: Representative of excellence in a particular period of construction; and/or is unique in that it demonstrates extraordinary aesthetic quality, creativity or innovation.

2. Integrity: Retains the majority of its character-defining features (materials, technologies, structure, colors, shapes, symbols, text, and/or art) that have historical significance, or are integral to overall sign design, or convey historical or regional context. If character-defining features have been altered or removed, the majority are potentially restorable to their historic function and appearance.

3. Safety: Structurally safe or can be made safe without substantially altering its historical appearance.

4. Location: The sign is not an off-site sign or billboard, as defined in the Zoning Code.

5. Regionalism: The sign is unique, or was originally associated with a chain or franchise business that is either a local or regional chain or franchise only found in Nashville or the southeastern United States; or there is national interest or scholarly documentation to support its preservation.

B. An historic sign must be constructed more than fifty years before the date of application and must meet all of the criteria for landmark sign designation and must meet all of the following criteria:

1. An historic sign may be repaired, restored, and/or adaptively reused if there is sufficient surviving fabric or sufficient historical documentation (photographs, postcards, permits, or other records) on which to base the treatment concept. An existing historic sign may be repaired, restored, or rehabilitated either in place, or off-site and then re-erected on site.

2. An historic sign may be repaired or restored to any past appearance prior to fifty years before the date of application. If the owner of an historic sign can provide documentation or physical evidence that the original design included intermittent lighting features (e.g., flashing, blinking, chasing or sequentially lit elements which create the appearance of movement) or moving parts, those sign elements may be repaired and restored.

3. An historic sign that will be adaptively reused must retain, repair, or restore the majority of the character-defining features (e.g., materials, technologies, structure, colors, shapes, symbols, text, typography and/or artwork) that have historical significance, or are integral to the overall design of the sign, or convey historical or regional context. Changes to character-defining text are not allowed; any or all text that is not character defining can be changed. Changes to text must either match or be compatible with existing text or the text being replaced, in terms of materials, letter size, font, and color.

C. A vintage sign must meet all of the criteria for landmark sign designation and must meet all of the following criteria:

1. Age: Constructed between fifty and twenty-five years before the date of application. Applications for signs constructed within twenty-five years of the date of application may be considered on the cultural and iconic contribution to the surroundings.

D. Replica sign:

1. A replica sign is permissible when based on sufficient historical documentation of the sign and its location. A sign can be replicated only once. Replicas of replicas are not permitted. A replica sign must use

historical materials and technologies, or use contemporary materials and technologies that visually match historical ones.

E. Guidelines for relocating a landmark sign:

1. A designated landmark sign may be relocated as follows:

a. To another location on the premises.

b. To another location that houses the same or similar business.

c. To an area of similar character within a one mile radius of the present location.

d. To the original location.

2. A designated landmark sign shall not be relocated to a R, R-A, RS, RS-A, RM, RM-NS, RM-A, or RM-A-NS zoned property.

3. A designated landmark sign shall not be relocated within one hundred fifty feet of a primary structure on R, R-A, RS, RS-A, RM, RM-NS, RM-A, or RM-A-NS zoned property.

4. All relocations are subject to the following:

a. The sign must be located no less than twenty feet from the face of the curb or edge of pavement. Where there is no curb, the measurement shall be taken from the street property line.

b. Projecting signs that project into the public right-of-way shall follow the rules and procedures of metro government, and shall follow the sign permitting process.

F. Sign calculations for a landmark sign:

1. Where the landmark sign does not identify the business occupying the premises, and is not used by an owner or occupant of the premises to advertise a business currently occupying the premises, the landmark sign shall not count against the total allowable sign area for the premises and shall not count against the number of signs allowed for the premises.

2. Where the landmark sign does identify the business occupying the premises or is used or adaptively reused by an owner or occupant of the premises to advertise a business currently occupying the premises, fifty percent of the square footage of the landmark sign shall count toward the total allowable sign area and shall count against the number of signs allowed for the premises.

3. One hundred percent of the square footage of a replica sign shall count toward the total allowable sign area for the premises and shall count against the number of signs allowed for the premises. (Ord. BL2019-111 § 1(Exh. A, §§ 47, 48), 2020; Ord. BL2016-309 § 5(Exh.), 2016)

17.32.150 Billboards.

A. Districts Permitting Billboards. Billboards shall be permitted in the CL, CL-NS, CS, CS-NS IWD, CF, CF-NS, IR, and IG districts subject to the provisions of this chapter and this title. However, billboards are prohibited on any property within a planned unit development (PUD) overlay district, regardless of the underlying zoning district, unless expressly permitted as part of an approved development plan by the metropolitan council; and in the CS and CS-NS districts for uses classified as Automobile repair, Automobile sales, used; Car wash and Vehicular sales and services limited. Type I billboards are prohibited in the CL and CL-NS districts. Type II billboards in the CL and CL-NS districts shall be limited to those areas of a lot which are within three hundred feet of the right-of-way of a controlled access highway, and all billboards shall be oriented towards that highway.

B. Regulations. Billboards are permitted in addition to other signs authorized by this title subject to the following restrictions:

1. There shall be two types of billboards based on the display surface area of the billboard:

a. Type I with a display surface area of seventy-five square feet or less; and

b. Type II with a display surface area of more than seventy-five square feet and less than six hundred seventy-five square feet.

2. The maximum display surface area for each type may be exceeded by thirty percent for embellishments to the standard rectangular sign, provided the embellishments do not project more than five feet above the top nor more than three feet beyond the sides and two feet beyond the bottom of the standard rectangular sign.

3. A billboard face shall consist of a single panel. Multiple panel faces, such as stacked or side-by-side, are not permitted.

4. One face of two back-to-back billboards of the same shape and dimensions, excluding embellishments, shall be used in computing the total display surface area when the signs are no more than fifteen feet apart when parallel to one another or are placed at an angle between signs that does not exceed twenty degrees. No copy shall be permitted between the back-to-back faces.

5. Minimum yards shall be provided as established by this table in all districts:

	Type I	**Type II**
Front	5 feet greater than on-premises ground sign in the same district	20 feet
Rear	20 feet	20 feet

	Type I	Type II
Side	Same as an on-premises ground sign	10 feet

6. There is established a maximum height limit of fifty feet above grade either at the base of the billboard or the nearest curb level of the surface street to which the billboard is oriented, whichever provides the greatest height. If the billboard is oriented to, and located within three hundred feet of a controlled access highway, a height of thirty feet above the elevation of the nearest travelway of the controlled access highway shall be permitted.

For Type I displays: There is established a maximum height limit of twenty feet above grade either at the base of the display or the nearest curb level of the surface street to which the display is oriented, whichever provides the greatest height.

7. Spacing between billboards located on the same side of a public street or controlled access highway shall be as indicated in the following table:

	Type I (Wall-mounted)	Type I (freestanding)	Type II (freestanding)
Type I (wall-mounted)	250 ft.	250 ft.	250 ft.
Type I (freestanding)	250 ft.	1,000 ft.	1,000 ft.
Type II (freestanding)	250 ft.	1,000 ft.	1,000 ft.

Note: The spacing between any Type I (freestanding) or Type II (freestanding) billboard and an existing Type II (wall-mounted) billboard shall be one thousand feet.

a. The spacing requirements shall be applied separately to each side of a public street, but continuously along the side of a street to all signs oriented toward that street in either direction whether the signs are in the same block or are in different blocks separated by an intersecting side street. (See Figure 17.32.150-1)

b. No billboard shall be closer than two hundred fifty (250) feet from any other billboard regardless of location. (See Figure 17.32.150-2)

c. No minimum spacing shall be required between any two wall-mounted signs placed on opposite sides of a building.

d. Type I billboards shall not be located within twenty feet of an on-premises ground sign on the same lot.

8. No Type II billboard located along a particular street shall be closer than five hundred feet from the nearest property line of any property that is zoned residential and has frontage on either side of such street. The distance for Type I billboards shall be two hundred fifty feet.

9. No billboard located along a particular street shall be closer than two hundred feet from the nearest property line of any residentially zoned property that does not front on said street.

10. No billboard shall be permitted whenever property zoned residential would be between the billboard and the roadway toward which it is oriented.

11. Type I billboards shall be permitted a spacing of two hundred fifty feet, measured airline distance, to a structure listed on the National Register of Historic Places. Type II billboards shall be permitted a spacing of five hundred feet, measured airline distance, to a structure listed on the National Register of Historic Places.

12. Type II billboards shall be located only on lots that have frontage on public streets with four or more travel lanes or that are located within three hundred feet and oriented to a limited access highway. Paired one-way streets with a minimum of two travel lanes in each direction shall be considered a four-lane road in applying this provision.

13. No billboard shall be permitted along any public street or highway that has been designated as a scenic route in the adopted major street plan of the metropolitan government.

14. Billboards shall be subject to the provisions contained in Section 17.32.050, Prohibited signs.

15. All billboards shall be of monopole-type construction. Type II billboards shall not be attached to the walls of buildings. Billboards shall not be located on the roofs of buildings.

16. The brightness and surface illumination shall not exceed two hundred-foot lamberts for a billboard having internal illumination or seventy-five footcandles for a billboard having indirect illumination. Billboards located within five hundred feet of property classified in a residential district shall not be illuminated between the hours of twelve a.m. and six a.m.

Figure 17.32.150-1
SPACING OF SIGNS

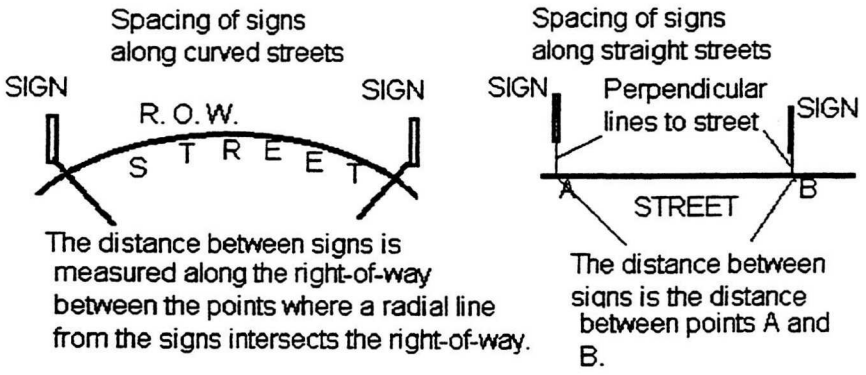
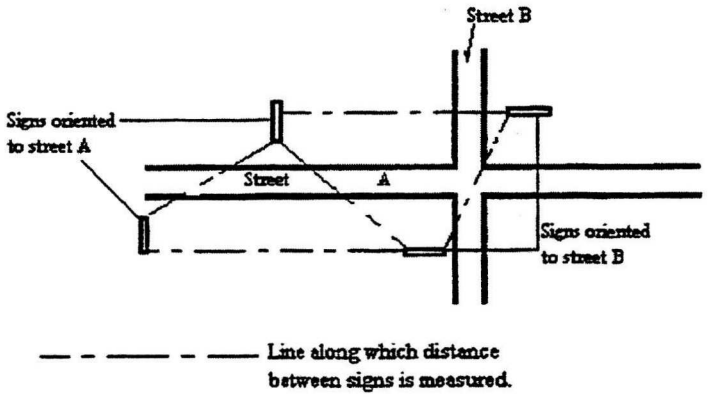


Figure 17.32.150-2
MEASUREMENT OF DISTANCE BETWEEN SIGNS ORIENTED TOWARD DIFFERENT STREETS



(Ord. BL2019-111 § 1(Exh. A, § 49), 2020; Ord. BL2019-1635 § 1, 2019; Ord. BL2016-309 § 5(Exh.), 2016)

17.32.160 Computations.

The following determinants shall control the calculation of sign area, height, and placement.

A. Distance Between Signs. The minimum required distance between signs shall be measured along street rights-of-way from the closest parts of any two signs.

B. Facade Area. The facade area for the purpose of calculating permitted on-premises building sign area may be determined as follows:

1. When architectural elevations are provided that accurately and to scale depict the facade of the structure, the area of the facade shall be calculated as the true structural building facade exclusive of roofs, parapets, and false facia. Parapets of a uniform height on three sides of a structure and of a similar and uniform building material may be included in the facade areas, but decorative parapet extensions of irregular height are excluded.

2. When architectural plans are not provided, it shall be assumed that the height of the facade of the first floor is twelve feet, and that the height of the facade of all stories above the first floor is ten feet per floor. Facade area shall be calculated based on the following formula:

[Facade length × 12 ft. (first floor)] + [facade length × 10 ft. per each additional floor] = facade area

C. Sign Area. The area of a sign shall be computed by means of the smallest square, circle, rectangle, triangle or combination thereof which will encompass the extreme limits of the writing, representation, emblem, or other display, together with any material or color forming an integral part of the background of the display or used to differentiate the sign from the backdrop or structure against which it is placed, but not including any supporting framework, bracing, or decorative fence or wall, when such fence or wall otherwise meets the provisions of this title, and is clearly incidental to the display itself.

D. Building-Mounted Letters and Pictures. Where a sign is composed of letters or pictures attached directly to a facade, window, door or marquee, and the letters or pictures are not enclosed by a border or trimming, the sign area shall be the area within the smallest rectangle, parallelogram, triangle, circle or semicircle or combination thereof, the sides of which touch the extreme points of the letters or pictures.

E. Four-Sided On-Premises Sign. Where four sign faces are arranged in a square, rectangle or diamond, the area of the on-premises sign shall be the area of the two largest faces.

F. Triangular On-Premises Sign. Where the inside angle of the edge nearest the street is greater than twenty degrees, the area of the sign shall be the area of the two largest faces.

G. Multiple-Face On-Premises Sign. For a multiple-faced on-premises sign, the sign area shall be computed by including all sign faces visible from any one point. When two identical sign faces are placed back to back so that both faces cannot be viewed from any point at the same time, and when such signs are part of the same sign structure and not more than forty-two inches apart, the sign area shall be computed by the measurement of one of the faces. If the forty-two inch space is used for any message, it will be counted as a sign face.

H. Height. Sign height shall be computed as the distance from the base of the sign at the normal grade to the top of the highest attached component of the sign, or the nearest curb level of the surface street providing access to the site, whichever provides the greatest height. Normal grade shall be construed to be the existing grade prior to construction or the newly established grade after construction exclusive of any filling, berming, mounding or excavating solely for the purpose of locating the sign.

I. Maximum On-Premises Sign Area. The permitted sum of the area of all individual on-premises signs on a lot shall be computed by applying the formula under each district to the lot frontage or ground floor area, and building facade, as appropriate, for the zoning district in which the lot is located. Lots fronting on two or more streets are allowed the permitted on-premises ground sign area for each street frontage; however, the total on-premises ground sign area that is oriented toward a particular street may not exceed the portion of the lot's total on-premises ground sign area allocation that is derived from that street or from the total ground floor area.

Figure 17.32.160-1
FACADE AREAS CALCULATED FOR SIGNAGE

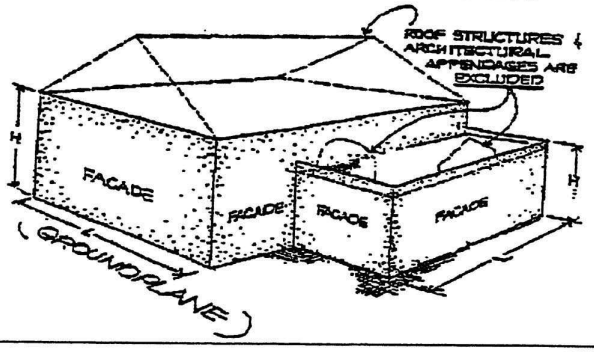
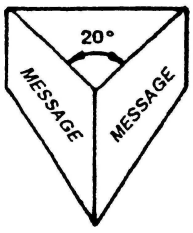


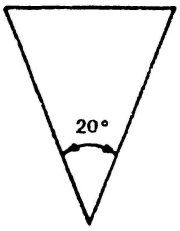
Figure 17.32.160-2

TRIANGULAR SIGN
Where the inside angle of the edge nearest the street is greater than 20 degrees, the area of the sign shall be the area of the two largest faces.



STREET SIDE

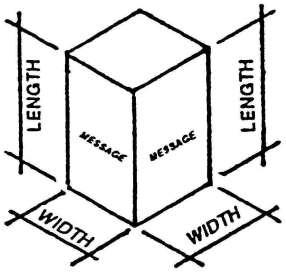
ELEVATION VIEW



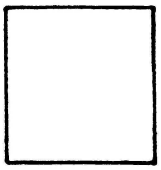
STREET SIDE

PLAN VIEW

FOUR-SIDED SIGN
If four sign faces are arranged in a square rectangle, or diamond they shall be counted as two signs.



ELEVATION VIEW



PLAN VIEW

(Ord. BL2016-309 § 5(Exh.), 2016)

Chapter 17.36

OVERLAY DISTRICTS

Sections:

Article I. Overlay Districts Established

17.36.010 Purpose and intent.
17.36.020 Applicability.
17.36.020A Definitions.

Article II. Planned Unit Development (PUD) District

17.36.030 Purpose and intent.
17.36.040 General provisions.
17.36.050 Minimum performance standards.
17.36.060 General development standards.
17.36.070 Residential standards.
17.36.080 Nonresidential and mixed-use standards.
17.36.090 Development bonuses.

Article III. Historic Overlay Districts

17.36.100 Purpose and intent.
17.36.110 Historic overlay districts established.
17.36.120 Historic districts defined.

Article IV. Greenway Overlay District

17.36.130 Purpose and intent.
17.36.140 Applicability.
17.36.150 General provisions.
17.36.160 Dedication incentives.

Article V. Floodplain Overlay District

17.36.170 General provisions.
17.36.180 Official floodplain map.
17.36.190 Permitted land uses.
17.36.200 Development standards.
17.36.210 Floodplain alterations.
17.36.220 Report to stormwater management commission.

Article VI. Airport Overlay District

17.36.230 General provisions.
17.36.240 Applicability.

Article VII. Adult Entertainment Overlay District

17.36.250 Purpose and intent.
17.36.260 Locational standards.

Article VIII. Urban Design Overlay District

17.36.270 Purpose and intent.
17.36.280 Overlay designation.
17.36.290 Design guidelines.
17.36.300 Permitted land uses.
17.36.310 Development incentives.
17.36.320 Variation of conventional standards.

Article IX. Institutional Overlay District

17.36.330 Purpose and intent.
17.36.340 Master development plan.
17.36.350 Development standards.

Article X. Impact Overlay District

17.36.360 Objectives of the impact overlay district.
17.36.370 Effect of zone changes on impact area policies.
17.36.380 I-440 Impact Area 1.
17.36.390 I-440 Impact Area 2.

Article XI. Neighborhood Landmark District

17.36.400 Purpose and intent.
17.36.410 District established.
17.36.420 District defined.

Article XII. Urban Zoning Overlay District

17.36.430 Purpose and intent.
17.36.440 Applicability.

[Article XIII. Contextual Overlay District]

17.36.450 Purpose and intent.
17.36.460 Overlay designation.
17.36.470 Design guidelines.
17.36.480 Permitted land uses.
17.36.490 Variation of conventional standards.
17.36.500 Contextual overlay district.

[Article XIV. Corridor Design Overlay District]

17.36.510 Purpose and intent.
17.36.520 Overlay designation.
17.36.530 Applicability of standards.
17.36.540 Variations to conventional standards.
17.36.550 Permitted land uses.
17.36.560 Corridor design overlay district.

Article XV. Residential Accessory Structure Overlay

17.36.570 Purpose and intent.
17.36.580 Overlay designation.
17.36.590 Guidelines.
17.36.600 Permitted land uses.
17.36.610 Variation of conventional standards.
17.36.620 Residential accessory structure overlay district.

Article XVI. Two-Story Residential Overlay

17.36.630 Purpose and intent.
17.36.640 Overlay designation.
17.36.650 Guidelines.
17.36.660 Permitted land uses.
17.36.670 Variation of conventional standards.
17.36.675 Two-story residential overlay district.

Article XVII. Detached Accessory Dwelling Unit (DADU) Overlay District

17.36.680 Purpose and intent.
17.36.690 Overlay designation.
17.36.700 Design guidelines.
17.36.710 Permitted land uses.
17.36.720 Bulk provisions.
17.36.730 Detached Accessory Dwelling Unit Overlay District.

Article XVIII. Commercial Compatibility Overlay

17.36.740 Purpose and intent.
17.36.750 Overlay designation.
17.36.760 Permitted land uses.
17.36.770 Variation of conventional land use development standards.
17.36.780 Commercial compatibility overlay district.

Article I. Overlay Districts Established

17.36.010 Purpose and intent.

Overlay districts are established by this title as a means of addressing specific aspects of land use control or development design that transcend conventional zoning district provisions. Included is an overlay district that permits greater design flexibility than otherwise permitted by the conventional standards of this code; overlay districts intended to protect the historic attributes of the community; an overlay to promote the development and operation of a comprehensive greenway system; a special overlay to protect the operational integrity and safety of the Nashville International Airport; an overlay district designed to regulate the location of adult entertainment establishments; a special urban design overlay; an institutional overlay to allow colleges and universities to grow in a sensitive and planned manner; and an urban zoning overlay district intended to preserve and protect existing development patterns that predate the mid-1950's and ensure the compatibility of new development. (Ord. BL2000-364 § 1 (part), 2000; Ord. 96-555 § 9.1(A), 1997)

17.36.020 Applicability.

An overlay district shall represent a mapped geographic area applied to the official zoning map according to the amendment procedures of Chapter 17.40, Article III. Overlay districts may be applied over any zoning district established by this title, and may encompass one or more of those districts. Unless expressly stated otherwise in this chapter, all lands encumbered by an overlay district shall conform to all other applicable provisions of this title. (Ord. 96-555 § 9.1(B), 1997)

17.36.020A Definitions.

The following definitions apply within Overlay Districts:

"Concrete masonry unit" means standardized building block composed of Portland cement, aggregates, and water. Commonly referred to as "CMU".

"Fiber cement products" means manufactured thin sections of hydraulic cementitious matrices and discrete nonasbestos fibers. These products may be commonly referred to by a trade or brand name: Hardie Board. (Ord. BL2021-1022 § 1, 2022)

Article II. Planned Unit Development (PUD) District

17.36.030 Purpose and intent.

The planned unit development (PUD) district is an alternative zoning process that allows for the development of land in a well-planned and coordinated manner, providing opportunities for more efficient utilization of land than would otherwise be permitted by the conventional zoning provisions of this title. The PUD district may permit a greater mixing of land uses not easily accomplished by the application of conventional zoning district boundaries, or a framework for coordinating the development of land with the provision of an adequate roadway system or essential utilities and services. In return, the PUD district provisions require a high standard for the protection and preservation of environmentally sensitive lands, well-planned living, working and shopping environments, and an assurance of adequate and timely provision of essential utilities and streets. (Ord. 96-555 § 9.2(A), 1997)

17.36.040 General provisions.

A. Applicability. A planned unit development (PUD) district may be applied over any zoning district established by Section 17.08.010 of this title.

B. Unified Control Required. All land area proposed for inclusion in a planned unit development district shall be under unified control at the time of application and

approval of a Master Development Plan. Upon establishment of the overlay district, the PUD district shall be recorded in accordance with Section 17.40.120(A)(6).

C. Master Development Plan. The development concept of all land areas encompassed by a PUD district shall be adequately described by a master development plan comprised of scaled drawings and associated reports. At a minimum, the master development plan shall adequately describe:

1. The overall boundary and area of the overlay district, including underlying zoning districts;

2. The general location, orientation and size of principal structures and associated parking areas; development approaches to be employed to comply with Chapter 15.64, the "Ordinance for Storm Water Management;" landscape and buffer areas required by Chapter 17.24, the location, size and general treatment of environmentally sensitive areas as defined by Chapter 17.28; the general location and size of existing and proposed water mains and sewer trunk lines required to service the development; and general traffic routes (external and internal) to and from the development with major access points identified;

3. Tabular data sufficient to demonstrate compliance with all applicable provisions of this title, including the range and scope of proposed land uses, proposed densities, floor area ratios or impervious surface ratios as applicable to development type; and land areas devoted to each type of general land use and phase of development;

4. Full identification, description and supporting rationale for any proposed exception from the typical design standards of this title and the subdivision regulations as authorized by Section 17.36.060G;

5. A proposed development schedule if the project is to be phased;

6. A traffic impact study if required by Chapter 17.20; identification of any proposed improvements to existing streets, off-site utility systems or the drainage network considered necessary to support the proposed scope of development, with intended assignments of responsibility for providing those improvements; and

7. A boundary plat prepared in accordance with accepted surveying practices describing the boundary of the proposed overlay district and all existing properties therein, complete with map and parcel numbers.

D. Final Site Plan. All final site plans shall conform to the general development concept of an approved master development plan. A final site plan shall consist of a detailed set of construction plans that fully demonstrate compliance with all applicable provisions of this title and accurately represent the resulting form of construction. Applications shall include all necessary

drawings, specifications, studies or reports as required by a submittal checklist adopted by the planning commission. An approved final site plan shall serve as the basis for issuance of zoning permits, certificates of compliance, and the subdivision of land.

E. Professional Design. One or more of the following design professionals shall certify direct involvement in the preparation of a PUD master development plan. A final site plan shall be certified by a civil engineer.

1. Architect;
2. Civil engineer;
3. Landscape architect;
4. Urban planner. (Ord. 96-555 § 9.2(B), 1997)

17.36.050 Minimum performance standards.

In addition to satisfying all other applicable provisions of this title, approval of a proposed master development plan shall be based upon findings that the following design and development objectives have been satisfied.

A. Protection of Environmentally Sensitive Areas. If encompassing environmentally sensitive areas as defined by Chapter 17.28, approval of a PUD master development plan shall be based upon a finding that the proposed development plan will result in greater protection and preservation of those areas than otherwise would result from development at the minimum protection standards of Chapter 17.28. Areas to be protected shall include undisturbed hillsides of twenty percent or greater slopes, nonmanipulated floodway and floodplain areas, problem soils, streams, creeks and major drains, designated wetlands, and areas containing protected Cedar Glade plant species.

B. Adequate Streets, Utilities and Drainage. Approval of a PUD shall be based upon a finding that streets, utilities and drainage features will be of adequate capacity to serve the proposed development. As part of a master development plan proposal, a property owner may offer to upgrade or otherwise provide adequate facilities to support the proposed intensity of development. Public facilities already included in an adopted capital improvements budget may be considered a demonstration of adequate capacity if properly timed with anticipated construction of the development.

C. Coordinated Vehicular Access. The approval of a master development plan shall be based on a finding that the vehicular access and internal circulation shall adequately support the operational needs of the development itself in a manner that maintains and protects the operational integrity of the community's major streets and highways to standards equal to or greater than otherwise required by Chapter 17.20. Further, the traffic circulation system for a master development plan shall be designed in a manner that directs commercial traffic away from residential streets.

D. Integrity of Adjacent Areas. The approval of a proposed master development plan shall be based on a finding that the project is designed and will be developed in a manner that will not impair the reasonable long-term use of nearby properties in fulfillment of the land use policies of the general plan.

E. Integrity of an Adopted Greenway Plan. Approval of a PUD master development plan that encompasses land area lying within the greenway overlay district shall be based upon a finding that the plan is designed in a manner that affords an opportunity for eventual implementation of the greenway plan. A master development plan shall take all reasonable measures to protect the visual and operational integrity of an existing or proposed greenway corridor by means of sensitive orientation and placement of improvements to the land, and the protection of mature vegetation and natural land forms. If development bonuses permitted by Section 17.36.090 are utilized, those areas of a master development plan lying within the greenway overlay district shall be dedicated for use as a component of the greenway network.

F. Preservation of Historic and/or Archaeological Sites. All reasonable measures shall be taken to incorporate features of historical and/or archaeological significance into the design and development of a PUD master development plan in a manner that contributes to the protection and preservation of those features. (Ord. 96-555 § 9.2(C), 1997)

17.36.060 General development standards.

A. Relationship to Other Requirements. Unless explicitly authorized otherwise by the approved master development plan under the authority of subsection G of this section, all requirements and standards established by other chapters of this title, as well as any other applicable metro, state or federal regulation, shall apply to the development and use of properties located within a PUD district. All development within a PUD district shall conform to Chapter 15.64, the "Ordinance for Storm Water Management" and the subdivision regulations. In case of conflict between the standards of this article and other chapters of this Zoning Code, the provisions of this article shall control.

B. Permitted Land Uses. Land uses permitted within a PUD district shall be established by the underlying zoning district(s). Any land use classified as a "P" or "PC" by the district land use table (Section 17.08.030) shall be permitted within a corresponding PUD district. Special exception uses ("SE") may be permitted within a

PUD district if approved initially as part of the master development plan by the metropolitan planning commission and council, or thereafter by the board of zoning appeals upon consideration of a recommendation by the planning commission.

C. Land Use Allocation. The overall intensity or scope of any given land use permitted within a PUD district by an underlying zone district shall be established by applying the land area within that district classification to the applicable bulk standards of Tables 17.12.020A, 17.12.020B or 17.12.020C. Although the locational arrangement of land uses within a PUD district may vary from the conventional zoning boundaries underlying the overlay, the overall range or scope of any type of land use shall not exceed that permitted by the underlying district corresponding to that use except when utilizing the development bonus provisions offered by this chapter. In the case of residential development, the number of permitted dwelling units and structure type shall be established by the corresponding zoning district(s) within the PUD district.

D. Residential Density. The maximum overall residential density of a master development plan shall be established by applying the minimum lot size requirements of Table 17.12.020A, the maximum density of Table 17.12.020B, or the maximum floor area ratio standard of Table 17.12.020C (as applicable) to the gross land area encompassed by the underlying zoning district(s) and by deducting fifteen percent of the gross land area for streets and dividing the remaining eighty-five percent of the gross land area by the minimum lot area of the actual zone district. Density shall be calculated on a pro-rata basis if the PUD district overlays more than one residential zoning district. A maximum density shall be assigned to each residential component of the master development plan and recorded by plat or equivalent instrument prior to commencing development of the first phase.

E. Floor Area Ratio (FAR). The maximum overall floor area permitted within a PUD master development plan shall be established by applying the maximum floor area ratio standards of Tables 17.12.020B or 12.12.020C (as applicable) to the gross land area encompassed by the underlying zoning district(s), excluding the public rights-of-way of existing streets and alleys. When more than one zoning district exists within a PUD district, floor areas shall be calculated on a pro-rata basis. If land uses are redistributed across district boundaries, maximum floor areas shall be assigned to each component of the master development plan and recorded by plat or equivalent instrument prior to commencing development of the first phase.

F. Impervious Surface Ratio (ISR). The overall area of impervious surface permitted within a master development plan shall not exceed that amount allocated to the gross land area of the underlying zoning district(s) as established by Tables 17.12.020B and 17.12.020C, exclusive of existing public street or alley rights-of-way. When a PUD district includes more than one underlying zoning district, the accumulative total of all impervious surfaces within a PUD master development plan shall not exceed the maximum impervious surface ratio(s) permitted by the underlying zoning district(s) on a pro-rata basis. If land uses are redistributed across district boundaries, the maximum permitted impervious surface ratio shall be established for each component of the master development plan and recorded by plat or equivalent instrument prior to commencing development of the first phase.

G. Alternative Design Standards. In the approval of a PUD master development plan, the council may authorize the establishment of alternative design standards based on a finding that those standards would serve to enhance the general development concept of the PUD district, would equal or exceed the standard design objectives of this title, and would not impair the reasonable long-term use of other properties in fulfillment of the land use policies of the general plan. Alternate design standards may be approved in lieu of the following provisions of this title for those portions of a master development plan not situated along the perimeter of a PUD district:

1. The setback and building height standards of Tables 17.12.020A, 17.12.020B or 17.12.020C;

2. The street setback standards of Section 17.12.030; and

3. The landscape buffer yard standards of Chapter 17.24.

H. Common Open Space. Areas of common open space required by this chapter shall be fully described on the master development plan, any applicable final site plan, and a recorded plat of subdivision. Common open space shall be maintained according to the provisions of Section 17.40.120 of this title.

I. Staged Development. Final site plan construction may occur in stages provided that a staging plan is reflected on the approved master development plan, each phase of development adheres to the applicable standards of this title independently, and streets and associated utilities are provided in a manner supportive of subsequent phases of development. If improvements to the existing street network or utility system are to be phased, an implementation schedule and funding program prorated to each contributing phase of development shall be prepared by the landowner for planning commission

approval with the first phase of development. (Ord. BL99-117 § 1 (part), 2000; Ord. 96-555 § 9.2(D), 1997)

17.36.070 Residential standards.

A. Clustering Single-Family and Two-Family Lots.

1. Residential lots within a PUD district may be grouped to a greater extent than allowed by the conservation development provisions of Section 17.12.090 in return for extraordinary protection of environmentally sensitive areas in a natural state. With proper environmental protection, a PUD master development plan may recapture up to one hundred percent of the average density achievable by similarly zoned land with no environmental constraints. The actual achievable density for any given master development plan may be less depending upon the extent of environmentally sensitive areas to be protected and the minimum lot requirements established below.

2. Recreational facilities.

a. Any property owner or developer of a subdivision clustering single-family and two-family lots within a PUD district as provided in subsection A.1. of this section shall install and/or construct recreational facilities on a portion of the required undeveloped common open space. For purposes of this section, "recreation facilities" means active play facilities (including but not limited to tennis courts, basketball courts, swimming pools, playgrounds, baseball/softball diamonds or volleyball courts) and passive amenities (including but not limited to walking trails, picnic shelters or gazebos, shared docks, and similar passive recreation amenities). Proposed recreation facilities shall be defined on the Master Development Plan and shall be demonstrated appropriate to the intended demographics of the single-family and two-family portion of a PUD.

b. Recreational facilities required pursuant to this subsection shall be located within usable open space areas and shall not be constructed within the following areas:

(1) Natural areas with slope greater than fifteen percent;

(2) Within the floodplain;

(3) Within a sinkhole; or

(4) Within areas that would impact cultural resources.

Editor's note—The word "usable" was misspelled by staff in the original bill. The dictionary spelling is "useable."

c. At a minimum, recreational facilities shall be constructed and/or installed in accordance with the following schedule:

(1) Residential developments containing fewer than twenty-five units shall be exempt from the requirement to install recreation facilities.

(2) One recreational facility shall be installed for developments containing between twenty-five and ninety-nine total residential units, plus an additional recreational facility for every one hundred residential units in excess of the first ninety-nine units.

B. Common Open Space. Except for those portions of a master development plan required for the installation of streets and essential utilities, the following areas shall be designated as common open space and protected by a recorded plat in accordance with Section 17.40.120.

1. Large contiguous areas of natural slopes of twenty percent or greater in all districts. The planning commission may authorize the creation of lots within natural slopes ranging up to twenty-five percent subject to the standards and conditions set out in Section 17.28.030;

2. Areas classified as natural floodway in a predevelopment state;

3. Two-thirds of the area classified as natural floodplain in a predevelopment state;

4. Areas containing protected Cedar Glade plant species as established by Section 17.28.060;

5. Streams, creeks and major drainage features;

6. Areas classified as wetlands; and

7. Landscape buffer yards as required by Chapter 17.24, Article IV.

Notwithstanding the above, a minimum of fifteen percent of the gross land area shall be designated as common open space for single and two-family development. Whenever feasible, areas of common open space within a master development plan should be interconnected in a cohesive and continuous manner.

C. Minimum Lot Sizes. The minimum size of lots created for single-family and/or two-family development may be less than the standard lot sizes normally required for the underlying zoning district(s) by Table 17.12.020A, subject to the following restrictions.

1. The minimum size of perimeter lots oriented towards an existing street shall be at least ninety percent of the minimum size required by Table 17.12.020 A for the actual zoning of the property. If, however, the opposite property has previously developed with smaller lot sizes, or has a currently approved plan of development with smaller lots sizes, the planning commission may permit the perimeter lots to be of a comparable size to those opposite lots within the overall size limitations established by this section.

2. Perimeter double-frontage lots oriented to an internal street may be reduced in size the equivalent of one zoning district provided that a standard C landscape buffer yard is provided within common open space along that boundary. Alternatively, perimeter double

frontage lots may be reduced in size the equivalent of two districts with the installation of a standard D landscape buffer yard.

3. Perimeter lots otherwise abutting a conventional R/R-A or RS/RS-A subdivision may be reduced in size the equivalent of one zoning district with the installation of a standard B landscape buffer yard located within common or natural open space, as applicable. Perimeter lots may be reduced in size the equivalent of two zoning districts with the installation of a standard C landscape buffer yard.

D. Required Setbacks. The minimum yard and street setback requirements for all residential lots shall be those established by Chapter 17.12 for the alternative zoning district assigned to that particular phase by the adopted master development plan, unless explicitly established otherwise according to Section 17.36.060G. The minimum rear yard setback for double frontage lots along the perimeter of a master development plan shall be no less than the standard street setback requirement of Chapter 17.12. (Ord. BL2022-1121 §§ 8, 9, 2022; Ord. BL2015-1153 § 16, 2015; Amdt. 1 to Ord. BL2007-1449 § 1, 2007; Ord. BL2007-1449 § 1, 2007; Ord. 98-1268 § 1 (part), 1998; § 1(12) of Amdt. 1 with Ord. 96-555 § 9.2(E), 1997)

17.36.080 Nonresidential and mixed-use standards.

Land uses within a single PUD district may cross underlying zoning district boundaries when determined appropriate by the metropolitan council. The location of land uses within the PUD district shall be established by the approved master development plan. The following standards apply to development in a PUD district containing nonresidential and mixed-use zoning districts.

A. Internal Compatibility. Approval of a master development plan containing a mixture of land uses shall be based on a finding that:

1. The land uses within the master development plan are arranged and designed in a complimentary and compatible manner;

2. Noncompatible land uses are effectively buffered or otherwise protected utilizing the landscape buffer yard provisions of Chapter 17.24 to the extent necessary to insure full use and enjoyment of all property within the district;

3. The vehicular circulation system throughout the master development plan directs traffic in an efficient, safe and nonintrusive manner; and

4. The individual land use components of the master development plan are interconnected by safe and convenient pedestrian linkages.

B. External Compatibility. If land uses within a master development plan cross underlying district boundaries, approval of the master development plan shall be based upon a finding that land uses are arranged and designed in a manner that does not unreasonably impair the long-term use of properties adjoining the PUD district as established by the general plan. (Ord. 96-555 § 9.2(F), 1997)

17.36.090 Development bonuses.

A development bonus may be awarded by the council to a master development plan from which there is an offer of public dedication and subsequent acceptance of land to satisfy or further a recognized community need or the provision of affordable housing.

A. Public Dedications. For each form of contribution established below, a twenty-five percent increase above the conventional density or floor area ratio (FAR) standard established by Tables 17.12.020A, 17.12.020B or 17.12.020C may be awarded. Calculation of the development bonus shall be limited to the land area being dedicated for public use. All corresponding development accrued from the bonus provisions shall be assigned to suitable locations elsewhere within the same PUD master development plan. The following forms of contribution may qualify for a development bonus:

1. A platted dedication of street right-of-way in excess of that required by the subdivision regulations for the purpose of accommodating future street widening;

2. The dedication of land (by title) for a needed public facility, such as a school site, park, library, fire hall or other safety service use;

3. The dedication of land (by easement or title) for drainage mitigation measures exceeding those otherwise required by this title or Chapter 15.64, "An Ordinance for Storm Water Management;"

4. The dedication of a site (by use easement or title) identified by the historical commission as being of special historic or archaeological value to the community; or

5. The dedication of land (by use easement or title) within a greenway overlay district to implement a greenway master plan.

B. [Reserved.] (Ord. BL2016-133 § 2, 2016; Ord. BL2006-975 § 2, 2006; Ord. 96-555 § 9.2(G), 1997)

Article III. Historic Overlay Districts

17.36.100 Purpose and intent.

The historic overlay district provisions are established by this title to insure the ongoing preservation of structures of historic value to Metropolitan Nashville

and Davidson County pursuant to the authority contained in Section 13-7-401 of the Tennessee Code Annotated. The provisions of this title are intended:

A. To preserve and protect the historical and/or architectural value of buildings, structures or areas of significant importance;

B. To regulate exterior, and in some cases interior, design, arrangement, texture and materials proposed to be used within the historic districts to ensure compatibility.

C. To create an aesthetic appearance which complements the historic buildings or other structures;

D. To stabilize and improve property values;

E. To foster civic beauty;

F. To strengthen the local economy; and

G. To promote the use of historic districts for the education, pleasure and welfare of the present and future citizens of Nashville and Davidson County. (Ord. BL2018-1417 § 1, 2019; Ord. 96-555 § 9.3(A), 1997)

17.36.110 Historic overlay districts established.

The following classifications of historic overlay districts are made a part of this title, each classification having separate and unique regulations and guidelines established according to the provisions of Chapter 17.40, Article IX.

A. Historic Preservation (HP) District. The boundaries shall be shown on the zoning map or on special overlays thereto which are made a part of this Zoning Code and noted by name on such maps, in which no structure shall be constructed, altered, repaired, relocated or demolished in whole or in part in this district unless the action complies with the requirements set forth in this title.

B. Neighborhood Conservation (NC) District. The boundaries shall be shown on the zoning map or on special overlays thereto that are made a part of this Zoning Code and noted by name on such maps, in which no structure shall be constructed, relocated, demolished in part or whole, increased in habitable area, or changed in height unless the action complies with the requirements set forth in this title.

C. Historic Landmark (HL) District. The boundaries shall be shown on the zoning map or on special overlays thereto that are made a part of this Zoning Code and noted by name on such maps, in which no structure shall be constructed, altered, repaired, relocated or demolished in whole or in part unless the action complies with the requirements set forth in this title.

D. Historic Bed and Breakfast Homestay (HB) District. The boundaries shall be shown on the zoning map or on special overlays thereto that are made a part of this Zoning Code and noted by name on such maps, in which no structure shall be constructed, altered, repaired, relocated or demolished in whole or in part unless the action complies with the requirements set forth in this title.

E. Historic Landmark Interiors (HI) District. The boundaries shall be shown on the zoning map or on special overlays thereto that are made a part of this Zoning Code and noted by name on such maps, in which no interior feature shall be constructed, altered, repaired, relocated or demolished in whole or in part within an interior space unless the action complies with the requirements set forth in this title.

F. Historic Landmark Signage (HS) District. The boundaries shall be shown on the zoning map or on special overlays thereto that are made a part of this zoning code and noted by name on such maps, in which no signage shall be constructed, altered, repaired, relocated or demolished in whole or in part unless the action complies with the requirements set forth in this title. (Ord. BL2021-843 § 1, 2021; Ord. BL2018-1417 § 2, 2019; Ord. BL2005-701 § 2, 2005; Ord. 96-555 § 9.3(B), 1997)

17.36.120 Historic districts defined.

A. Historic Preservation and Neighborhood Conservation Districts. These districts are defined as geographical areas which possess a significant concentration, linkage or continuity of sites, buildings, structures or objects which are united by past events or aesthetically by plan or physical development, and that meet one or more of the following criteria:

1. The district is associated with an event that has made a significant contribution to local, state or national history; or

2. It includes structures associated with the lives of persons significant in local, state or national history; or

3. It contains structures or groups of structures that embody the distinctive characteristics of a type, period or method of construction, or that represent the work of a master, or that possess high artistic values, or that represent a significant and distinguishable entity whose components may lack individual distinction; or

4. It has yielded or may be likely to yield archaeological information important in history or prehistory; or

5. It is listed or is eligible for listing in the National Register of Historic Places.

B. Historic Landmark. An historic landmark is defined as a building, structure, site or object, its appurtenances and the property it is located on, of high historical, cultural, architectural or archaeological importance; whose demolition or destruction would

constitute an irreplaceable loss to the quality and character of Nashville and Davidson County; and that meets one or more of the following criteria:

1. The historic landmark is associated with an event that has made a significant contribution to local, state or national history;

2. It is associated with the lives of persons significant in local, state or national history;

3. It embodies the distinctive characteristics of a type, period or method of construction, or that represents the work of a master, or that possesses high artistic value;

4. It has yielded or may be likely to yield archaeological information important in history or prehistory; or

5. It is listed or is eligible for listing in the National Register of Historic Places.

C. Historic Bed and Breakfast Homestay.

1. An historic bed and breakfast homestay is defined as a building or structure containing three or fewer furnished guest rooms for pay within a private, owner-occupied historically significant structure. Meals may be provided to overnight guests, and the maximum stay for any guest shall be fourteen consecutive days. An historic bed and breakfast homestay shall meet one or more of the following criteria:

a. The historic bed and breakfast homestay is associated with an event that has made a significant contribution to local, state or national history;

b. It is associated with the lives of persons significant in local, state or national history;

c. It embodies the distinctive characteristics of a type, period or method of construction, or that represents the work of a master, or that possesses high artistic value; or

d. It is listed or is eligible for listing in the National Register of Historic Places.

2. In addition to the criteria listed in subsection C.1. of this section, the historic bed and breakfast homestay shall satisfy the following conditions:

a. Exterior work proposed to be done will be subject to design review guidelines adopted by the metropolitan historic zoning commission for determining the architectural compatibility and historical significance of such work. The design review guidelines for neighborhood conservation districts shall apply to historic bed and breakfast homestays. The metropolitan historic zoning commission's approval of work shall be granted in writing as a condition for issuance of a zoning permit.

b. Owner-occupied. The owner of the property must reside permanently in the historic home. Where there is more than one owner of the home, or where an estate, corporation, limited partnership or similar entity is the owner, a person with controlling interest, or possessing the largest number of outstanding shares owned by any single individual or corporation, shall reside permanently in the historic home. If two or more persons own equal shares that represent the largest ownership, at least one of the persons shall reside permanently in the historic home.

c. No more than one off-street parking space shall be provided for each guest room. The commission shall advise on the appropriate location and potential adverse impacts caused by the off-street parking of vehicles, and may recommend fencing, screening and landscaping to buffer and protect surrounding residential properties.

d. Signage. Any sign, as defined in M.C.L. 17.32.030.B, on a property used for a historic bed and breakfast homestay shall be governed by the provision of M.C.L Chapter 17.32 Sign Regulations. An accessory residential sign, not to exceed the dimensions of one square foot of area, may be permitted.

e. The bulk regulations of the district for a residence shall apply. Overnight guest rooms may be located within historically significant accessory structures.

f. The owner shall maintain and make available to the zoning administrator a guest register for each calendar year.

g. Meal service shall be restricted to overnight guests only; no cooking facilities shall be permitted in any guest room.

h. The metropolitan fire marshal shall approve the structure for safety.

D. Historic Landmark Interiors. An historic landmark interior is defined as the public interior space of a building or structure of high historical, cultural, and architectural value; where alteration, demolition or destruction would constitute an irreplaceable loss to the quality and character of Nashville and Davidson County; and that meets one or more of the following criteria:

1. The historic landmark interior is associated with an event that has made a significant contribution to local, state or national history;

2. It is associated with the lives of persons significant in local, state or national history;

3. It embodies the distinctive characteristics of a type, period, or method of construction;

4. It is a historic landmark; or,

5. It is listed or is eligible for listing in the National Register of Historic Places.

E. Historic Landmark Signage.

1. Signage must meet all of the following criteria to qualify as a Historic Landmark Sign (HS):

a. Materials, technology, and design. The signage must be representative of excellence in a particular period of construction; and/or must be unique in that it demonstrates extraordinary aesthetic quality, creativity or innovation.

b. Integrity. The signage design must retain the majority of its character-defining features (materials, technologies, structure, colors, shapes, symbols, text, and/or art) that have historical significance, or are integral to overall sign design, or convey historical or regional context. If character-defining features have been altered or removed, the majority must be potentially restorable to their historic function and appearance. This overlay shall not regulate the content or message of the signage.

c. Location. The sign shall not be [a] billboard, as defined in the Zoning Code.

d. Age. The sign must have been constructed more than thirty years before the date of application.

2. Sign calculations for a landmark sign:

a. Fifty percent of the square footage of the landmark sign shall count toward the total allowable sign area and shall count against the number of signs allowed for the premises.

b. Sign calculations shall be determined and confirmed by the Codes Department. (Ord. BL2024-154 § 1, 2024; Ord. BL2021-843 § 2, 2021; Ord. BL2018-1417 § 3, 2019; Amdt. 1 to Ord. BL2016-309 § 4, 2016; Ord. BL2016-309 § 4, 2016; Ord. BL2005-701 § 2, 2005; Ord. 96-555 § 9.3(C), 1997)

Article IV. Greenway Overlay District

17.36.130 Purpose and intent.

The greenway overlay district is established for the purpose of identifying on the official zoning map those properties which an adopted greenway master plan has determined appropriate for inclusion in a community-wide greenway system. The provisions of the greenway overlay district are intended to facilitate the implementation and ongoing utilization of a countywide greenway system through appropriate design and development of properties within the district, and to encourage active participation in the implementation of an adopted greenway plan through the use of development incentives. (Ord. 96-555 § 9.4(A), 1997)

17.36.140 Applicability.

In accordance with Chapter 17.40, Article III, the greenway overlay district may be applied to any property included within a greenway master plan adopted by the metropolitan greenways commission. The provisions of this article shall apply to those portions of a property lying within a greenway overlay district. (Ord. 96-555 § 9.4(B), 1997)

17.36.150 General provisions.

A. Properties encompassed by a mapped greenway overlay district are encouraged to utilize the conservation development option (Section 17.12.090) or planned unit development (Article II of this chapter) provisions of this title, thereby protecting the functional integrity of the adopted greenway master plan.

B. In consideration of a subdivision plat utilizing the conservation development provisions of Section 17.12.090 or a PUD master development plan containing property within a greenway overlay district, the planning commission shall solicit a recommendation from the metropolitan greenways commission staff regarding the objectives of the adopted greenway plan as they relate to the subject property. The planning commission shall base its approval or disapproval on the extent to which a property owner has taken all reasonable measures to orient development in a manner which protects the value of those areas within the district for incorporation into a greenway system. (Ord. BL2022-1121 § 10, 2022; Ord. 96-555 § 9.4(C), 1997)

17.36.160 Dedication incentives.

Development incentives are established by this section to encourage participation in the implementation of a comprehensive greenway network. In return for a development bonus, the landowner shall locate all development outside the overlay district, design and orient all development in a manner which protects the functional and operational integrity of the greenway network, and dedicate all areas within the overlay district for public use by conveyance of easements, property title or equivalent means. The following incentives may be applied to properties lying within a mapped greenway overlay district, and are to be considered bonuses granted above and beyond all other cluster incentives established elsewhere in this title.

A. Multifamily development in the RM and mixed-use districts may achieve a twenty-five percent bonus in achievable density derived from that amount of land area dedicated for public greenway use. Area dedicated for public greenway use in a PUD development may count one and one-half times towards satisfying the minimum common open space requirement of Section 17.36.070B; all protected trees within the area of dedication may count one and one-half times in satisfying the tree density requirements of Section 17.28.065.

B. Nonresidential development may be granted a floor area ratio (FAR) bonus of twenty-five percent for that amount of land area dedicated for public greenway use. All protected trees within the area of greenway dedication may count one and one-half times in satisfying the tree density requirements of Section 17.28.065.

C. Nonresidential development may be granted a floor area ratio (FAR) bonus of twenty-five percent for that amount of land area dedicated for public greenway use. All protected trees within the area of greenway dedication may count one and one-half times in satisfying the tree density requirements of Section 17.28.065. (Ord. BL2022-1122 § 12, 2022; Ord. BL2022-1121 § 11, 2022; Ord. BL2015-1153 § 16, 2015; Ord. 96-555 § 9.4(D), 1997)

Article V. Floodplain Overlay District

17.36.170 General provisions.

In addition to the floodplain and floodway protection provisions of Chapter 17.28, the alteration or development of land subject to flooding shall be regulated by Chapter 15.64 of the Metropolitan Code of Laws ("An Ordinance for Storm Water Management"), the purposes being to prevent the obstruction of watercourses and the protection of lives and property from the hazards of flooding. Regulation of flood-prone properties further allows for the reasonable protection of this community's natural ecosystems and wetlands areas, and qualifies Metropolitan Nashville and Davidson County for flood insurance under Public Law 1016, 84th Congress (as amended or superseded). (Ord. 96-555 § 9.5(A), 1997)

17.36.180 Official floodplain map.

The Federal Emergency Management Agency Flood Insurance Rate Maps, along with specific basin studies that have been approved by the director of the department of public works shall constitute the official floodplain map for the Metropolitan Government of Nashville and Davidson County. In addition, the floodplain regulations of this title and Chapter 15.64 of the Metropolitan Code of Laws shall apply to lands which can be demonstrated to lie within a floodplain. Conversely, any lands which can be demonstrated by competent engineering to lie beyond the floodplain shall not be subject to these regulations. In cases of discrepancy, the official floodplain map maintained by the department of public works shall take precedence over generalized floodplain boundaries referenced on the official zoning map. (Ord. 96-555 § 9.5(B), 1997)

17.36.190 Permitted land uses.

Land uses permitted within the floodplain overlay district shall be established by the underlying base zone district according to the district land use table (Section 17.08.030) or an adopted PUD master development plan (if applicable). (Ord. 96-555 § 9.5(C), 1997)

17.36.200 Development standards.

All development within the floodplain overlay district shall be in conformance with Chapter 17.28, Article I of this title, Chapter 15.64 of the Metropolitan Code of Laws, and the subdivision regulations of Nashville and Davidson County. (Ord. 96-555 § 9.5(D), 1997)

17.36.210 Floodplain alterations.

Alterations of floodplain land and drainage channels shall be in accordance with applicable provisions of Chapter 15.64, "Stormwater Management." (Ord. BL2016-513 § 37, 2017; Ord. 96-555 § 9.5(E), 1997)

17.36.220 Report to stormwater management commission.

A request for a variance to the requirements of Chapter 15.64, Stormwater Management, shall be considered by the stormwater management commission according to the provisions of Chapter 15.64 of the Metropolitan Code of Laws. Prior to consideration of a variance, the stormwater management commission shall solicit a report from the zoning administrator and the planning department regarding the applicability of Chapter 17.28, Article I, or any other provision of this title. (Ord. BL2023-1888 §§ 26, 27, 2023; Ord. BL2016-513 § 38, 2017; Ord. 96-555 § 9.5(F), 1997)

Article VI. Airport Overlay District

17.36.230 General provisions.

The maximum height of all structures within the airport overlay district shall be regulated in order to prevent obstructions to aircraft navigation associated with the Nashville International Airport, thus protecting the health, safety and general welfare of the traveling public and this community. The provisions of this title are a supplement to the provisions of the Federal Aviation Act of 1958, 49 U.S.C. 1101 et seq., and Title 14, Code of Federal Regulations, Part 77 (as amended), all of which are incorporated into this code by reference. (Ord. 96-555 § 9.6(A), 1997)

17.36.240 Applicability.

Properties subject to the airport overlay district provisions and the specific height controls encumbering those proper-ties shall be referenced on maps maintained and

periodically updated by the Metropolitan Nashville Airport Authority. In cases of discrepancy, the specific airport overlay district boundaries depicted on maps maintained by the Metropolitan Nashville Airport Authority shall take precedence over generalized boundaries referenced on the official zoning map. Within the overlay district, the maximum permitted height of structures shall be as prescribed by the Metropolitan Nashville Airport Authority, or the applicable standard of the base zone district or land use, whichever is less. (Ord. 96-555 § 9.6(B), 1997)

Article VII. Adult Entertainment Overlay District

17.36.250 Purpose and intent.

The adult entertainment overlay district is intended to provide adequate locational opportunities for adult entertainment establishments within the downtown area of Nashville and Davidson County while reasonably directing such uses to locations that minimize disruption both to the general community and specific land uses noted below. (Ord. 96-555 § 9.7(A), 1997)

17.36.260 Locational standards.

A. All adult entertainment establishments shall be located within a contiguous adult entertainment overlay district, being authorized within those zoning districts classified as "O" in the district land use table of Section 17.08.030 of this code under "Adult entertainment."

B. Within the overlay district, no adult entertainment establishment shall be located within five hundred feet (measured property line to property line) of:

1. A religious institution;

2. A facility engaged primarily in community education;

3. A day care center or day care home;

4. A college or university; or

5. A park.

C. No adult entertainment establishment shall locate within an adopted redevelopment district unless that redevelopment district specifically authorizes adult entertainment uses as a permitted land use.

D. No establishment classified as adult entertainment shall locate within one hundred fifty feet (measured property line to property line) of any other adult entertainment establishment. (Ord. BL2004-490 § 1, 2005)

Article VIII. Urban Design Overlay District

17.36.270 Purpose and intent.

The purpose of the urban design overlay district is to allow for the application and implementation of special design standards with the intent of achieving a sense of place by fostering a scale and form of development that emphasizes sensitivity to the pedestrian environment, minimizes intrusion of the automobile into the urban setting, and provides for the sensitive placement of open spaces in relationship to building masses, street furniture and landscaping features in a manner otherwise not insured by the application of the conventional bulk, landscaping and parking standards of this title. Application of this special overlay district shall be limited to areas requiring specialized design standards either to maintain and reinforce an established form or character of development, or to achieve a specific design objective for new development. Any application for an urban design overlay district shall include design goals and objectives that embody this purpose and intent. (Ord. 2001-856 § 1 (part), 2001; Ord. 96-555 § 9.8(A), 1997)

17.36.280 Overlay designation.

An urban design overlay district shall be created according to the procedures of Chapter 17.40, Article III and depicted as a geographical area on the official zoning map. (Ord. 96-555 § 9.8(B), 1997)

17.36.290 Design guidelines.

An ordinance creating an urban design overlay district shall include a design plan and associated design criteria of sufficient detail to demonstrate how the design goals and objectives will be accomplished. (Ord. 2001-856 § 1 (part), 2001; Ord. 96-555 § 9.8(C), 1997)

17.36.300 Permitted land uses.

The range of land uses permitted within an urban design overlay district shall be those afforded by the underlying zoning district(s) as established by the zoning district land use table of Section 17.08.030. While all land uses classified as 'A', 'P', or 'PC' by the underlying zoning district(s) shall be permitted within the urban

design overlay district, the urban design overlay guidelines may provide alternative development standards for specific land uses as necessary to achieve the overall design intent of the district. (Ord. BL2005-702 § 1, 2005; Ord. 96-555 § 9.8(D), 1997)

17.36.310 Development incentives.

To promote the inclusion of properties within an urban design overlay district for the purpose of achieving specified design objectives, the enacting ordinance may establish development incentives. (Ord. 2001-856 § 1 (part), 2001; Ord. 96-555 § 9.8(E), 1997)

17.36.320 Variation of conventional standards.

Variations to the conventional standards of the underlying zoning district(s) as established in Chapter 17.12, Sections 17.12.020 through 17.12.060; Chapter 17.16, Sections 17.16.020 through 17.16.330; the parking, loading and access standards of Chapter 17.20, excluding subsection B of Section 17.20.060, Section 17.20.120, Sections 17.20.140 through 17.20.170 and Section 17.20.190; the landscaping and buffering standards of Chapter 17.24, excluding Article II; and more strict variations to the sign standards of Chapter 17.32 may be incorporated within the specific standards of an overlay district if deemed necessary to achieve stated design objectives of the district. (Ord. BL2005-702 § 2, 2005; Ord. 99-1615 § 1 (part), 1999)

Article IX. Institutional Overlay District

17.36.330 Purpose and intent.

The purpose of the institutional overlay district is to provide a means by which colleges and universities situated wholly or partially within areas of the community designated as residential by the general plan may continue to function and grow in a sensitive and planned manner that preserves the integrity and long-term viability of those neighborhoods in which they are situated. The institutional overlay district is intended to delineate on the official zoning map the geographic boundaries of an approved college or university master development plan, and to establish by that master development plan the general design concept and permitted land uses (both existing and proposed) associated with the institution. (Ord. BL2003-1399 § 4, 2003; Ord. 96-555 § 9.9(A), 1997)

17.36.340 Master development plan.

Application of the institutional overlay district of this title shall be limited to those land areas encompassed by a college or university master development plan as approved by the council pursuant to the procedures of Section 17.40. At a minimum, an approved master development plan shall be comprised of scaled drawings and accompanying reports which adequately describe the extent of the existing (if applicable) and proposed campus of the institution along with long-range growth objectives and an assignment of institutionally related land uses. The master development plan and accompanying documentation shall be sufficient in detail to provide the public with a good understanding of the developed campus's impact on the adjoining neighborhood(s). The master development plan shall distinguish between the following types of generalized campus activities: academic areas, such as classrooms and labs; general administrative offices; support services, such as major parking areas, food services and bookstores; campus-related residential areas, including dormitories, fraternities and sororities; operational areas, such as maintenance buildings, power plants and garages; and athletic areas, including gymnasiums, intramural facilities, stadiums and tracks. In the approval of a master development plan, the council shall require the inclusion of a phasing plan to insure that campus expansion occurs in a manner that can be supported by adequate public services and minimizes disruption to the surrounding residential community. (Ord. BL2003-1399 § 5, 2003; Ord. 96-555 § 9.9(B), 1997)

17.36.350 Development standards.

In addition to other applicable provisions of this code, the following development standards shall apply to new construction associated with the implementation of a campus master development plan.

A. Street Standard. Unless otherwise precluded by the placement and operation of existing campus facilities, principal driveway access shall be from collector or arterial streets.

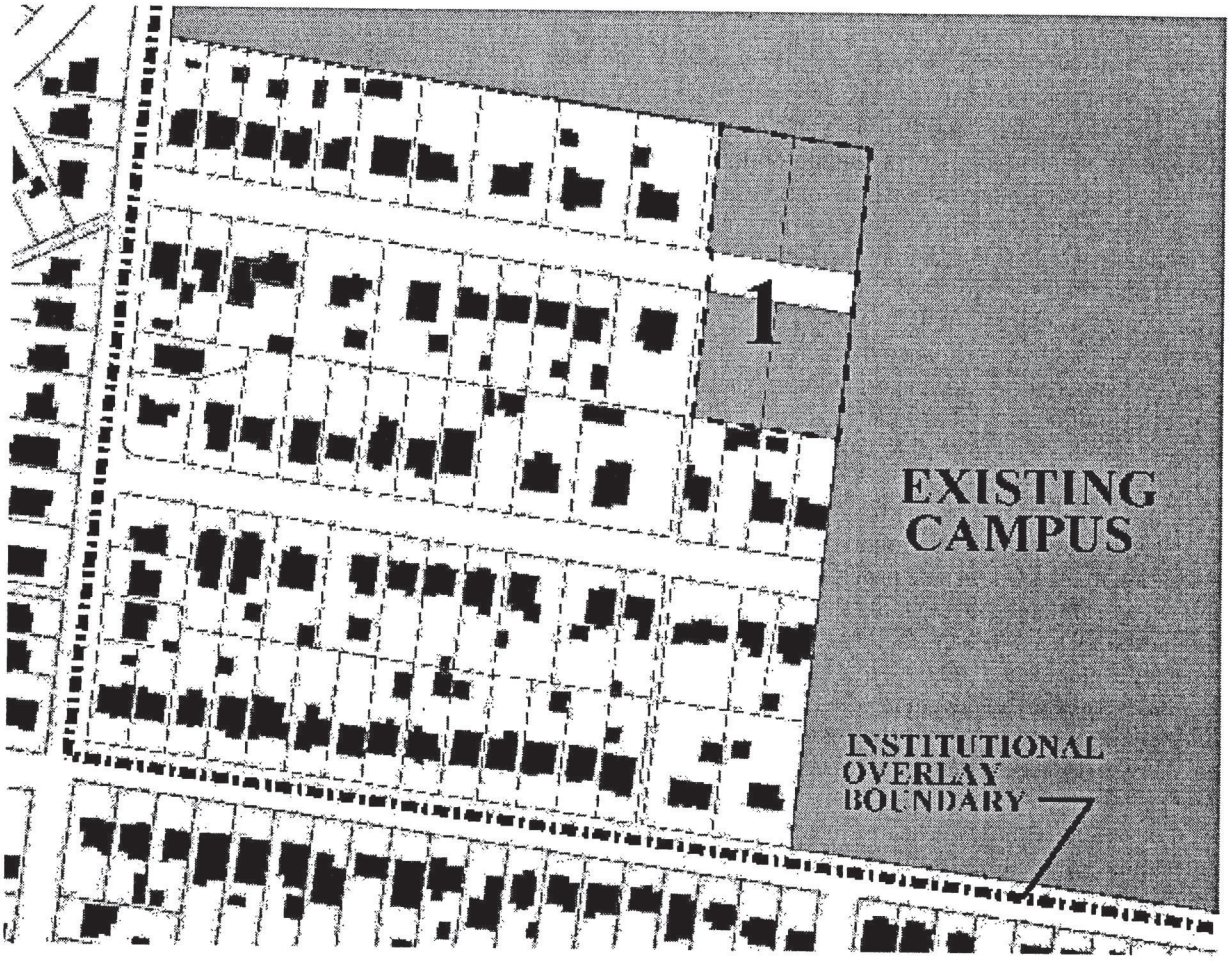
B. Traffic Impact Study. The traffic impact study requirements of Section 17.20.140. A traffic impact study prepared for any campus master development plan shall be subsequently updated at least every five years. Traffic generated by institutional-related uses built subsequent to the initial approval of a campus master plan under this title shall not cause the level of service on any local residential street to fall below level of service C.

C. Within the boundaries of an approved campus master development plan, existing land uses and structures may continue in conformance with the base zoning district(s) until construction under an approved final site plan is undertaken in conformance with Section 17.40.140(D). Residential properties located within the boundaries of the campus master development plan owned by the institution, or an agent or subsidiary of the institution, shall continue to be used for residential

purposes within the limitations of the base zoning district, unless otherwise provided for in the master development plan. Such residential properties shall be maintained in a safe, clean and orderly condition as required by all applicable codes and regulations.

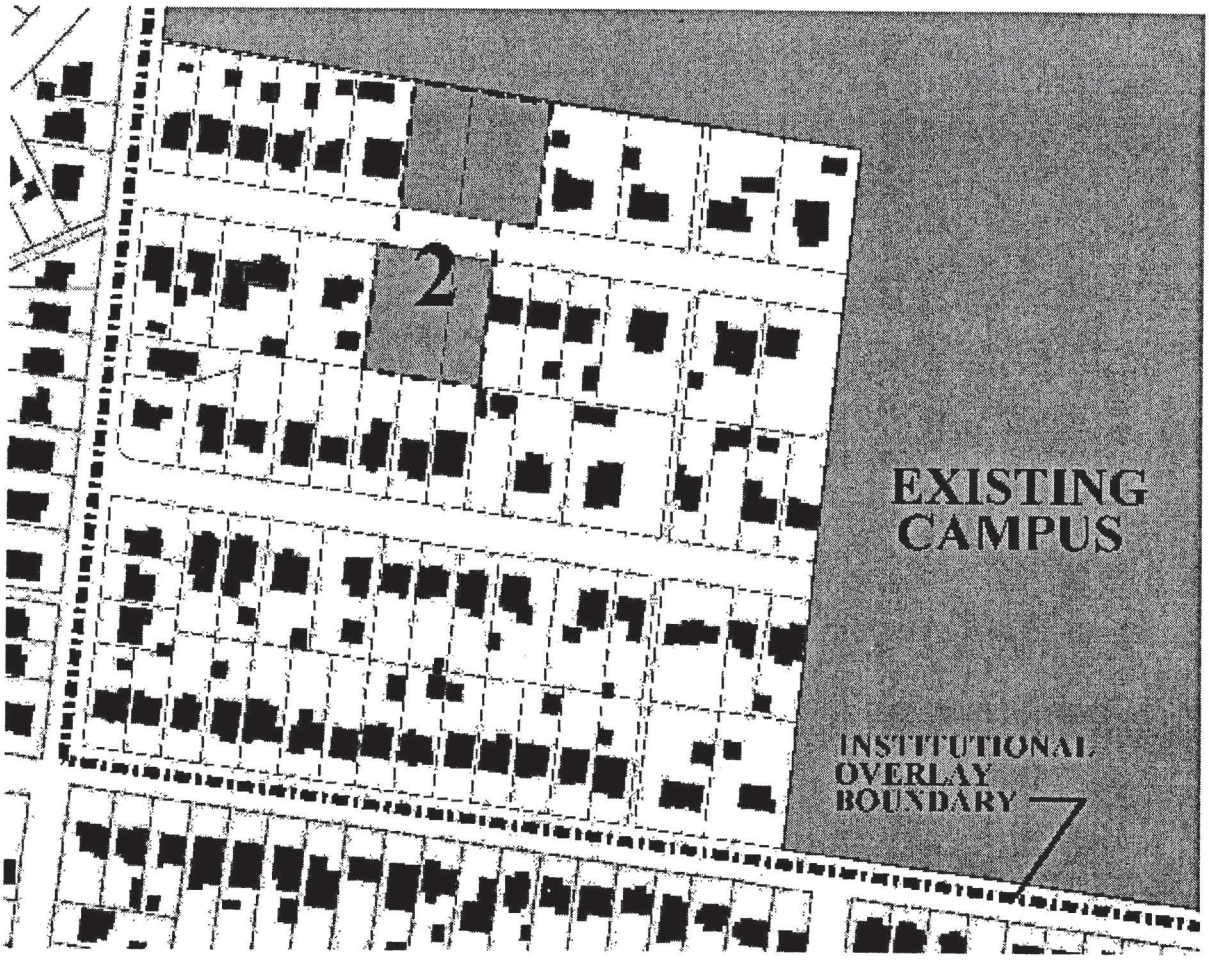
D. Within the boundaries of an approved campus master development plan, applications for final site plans for institutional-related uses shall be approved only in areas: 1) contiguous to the existing campus as of the date of the application; 2) in accordance with an approved phasing plan; and 3) in a manner that does not further fragment the pattern of residentially used parcels from the residential area outside of the existing campus (See Figure 17.36.350). Each plan phase shall be supported by adequate infrastructure improvements. The introduction of an institutional-related use adjacent to an existing and improved residential lot not owned by, or contractually obligated to, the institution shall incorporate a landscape buffer yard to protect that residential lot. The introduction of parking in these locations should be avoided. For the purpose of determining an adequate buffer, a new parking facility shall be treated as an institutional-related use that is least compatible with residential use. The planning commission shall require an adequate buffer yard under the standards of Table 17.24.230 sufficient to maintain the residential integrity of the residential property not owned by, or contractually obligated to, the institution.

Figure 17.36.350



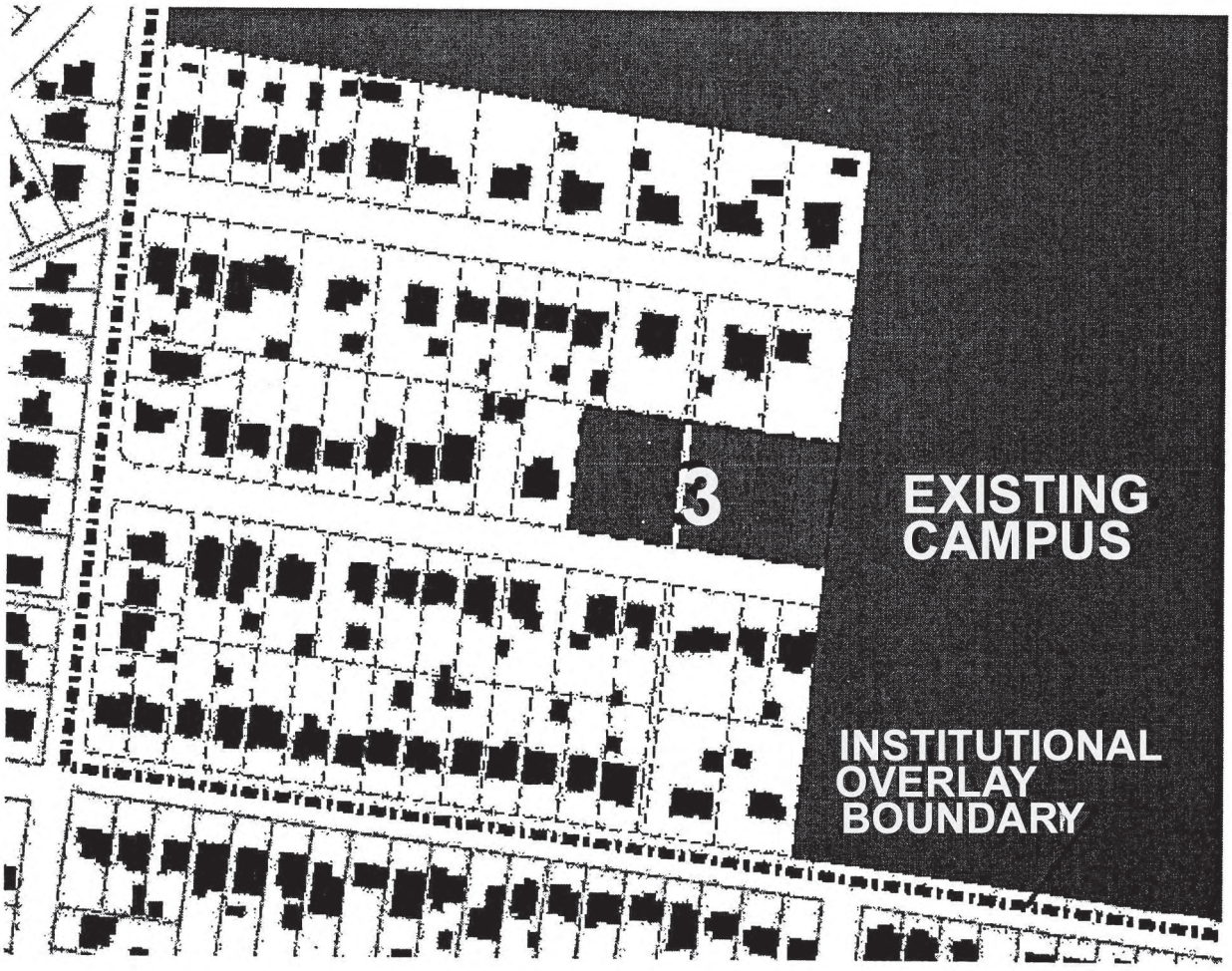
Appropriate Application

Figure 17.36.350 (Continued)



Inappropriate Application

Figure 17.36.350 (Continued)



Inappropriate Application

(Ord. BL2003-1399 § 6, 2003; Ord. 96-555 § 9.9(C), 1997)

Article X. Impact Overlay District

17.36.360 Objectives of the impact overlay district.

The objectives of the special impact overlay district are as follows:

A. To avoid adverse impacts caused by land use changes occasioned by the introduction of a major public facility, such impacts including both adverse influence on other land or on public facilities; and

B. To insure a thorough analysis of all zoning district amendments within areas subject to adverse impacts from a major public facility. (Ord. 96-555 § 9.10(A), 1997)

17.36.370 Effect of zone changes on impact area policies.

All zone changes shall comply with the land use policies contained herein. A set of all maps delineating impact areas and subareas created in this chapter shall be filed in the office of the metropolitan clerk upon adoption

of such policies and maps. The applicability of policies adopted in this chapter to zone change proposals within impact areas shall be determined by the metropolitan council. In its recommendation to the council on zone change proposals within impact areas, the metropolitan planning commission shall advise the council on the applicability of the impact area policies. Whenever the metropolitan council determines that a zone change proposal within an impact area is not subject to the impact area policies, it shall consider such zone change proposal in the same manner that zone change proposals outside of impact areas are considered. (Ord. 96-555 § 9.10(B), 1997)

17.36.380 I-440 Impact Area 1.

The following policies shall be applicable to I-440 Impact Area 1.

A. Overview and Applicability. Policies are presented in two parts: Those applicable throughout Impact Area 1 and those applicable only within specific subareas of Impact Area 1. The policies shall apply to zone change proposals that have been determined by the metropolitan council to be related to the presence and/or operational effects of Interstate 440.

B. Adoption of Impact Area Maps. The maps attached to the ordinance codified in this chapter and on file in the office of the metropolitan clerk, delineating Impact Area 1 and its subareas are adopted as part of this chapter and may be viewed upon request at the office of the metropolitan clerk.

C. Impact Area 1-Areawide Policies. The policies set forth herein shall apply within Impact Area 1 delineated on Map 1.

1. The design of Interstate 440 addressed the objectionable visual and auditory impacts typically cited as reasons why property near a major highway is unsuitable for residential use, particularly one-family and two-family housing. Therefore, areas in close proximity to Interstate 440 will remain suitable and appropriate for residential use, and zoning policy should be to vigorously support the preservation and protection of the existing stable housing and neighborhoods adjoining the Interstate 440 corridor with particular emphasis on areas presently zoned for one-family and two-family type housing.

2. As reflected in Concept 2010: A General Plan for Nashville and Davidson County, adopted land use policy does not support the introduction of any nonresidential base or overlay zoning district in the portion of the impact area that is on the out-of-town side of Interstate 440. Any such rezoning is inappropriate and should be avoided.

3. Planned unit development overlay zoning provides the best opportunity to address site design, buffering, traffic access and other development considerations that may be of concern to adjoining property owners. Generally, PUD overlay zoning should be used in order to achieve a harmonious relationship among existing and new development.

4. In general, all rezoning to permit new residential and nonresidential development should be subject to the availability of sufficient traffic, utility and drainage capacity to ensure an adequate level of service after the new development has been added. Further, zone changes to accommodate unforeseen development should be avoided when such development would usurp traffic and utility system capacity intended to support planned growth in the area.

D. Impact Area 1-Subarea Policies. The policies set forth in this subsection shall be applicable only within the specific subarea referenced.

1. Subarea 1-A Policies (Map 1-A). Base zoning district changes to higher density or nonresidential zone districts are inappropriate. Residential planned unit developments are appropriate. Such developments that contain other than one-family or two-family type housing structures should be limited to locations along the fringes of this area and careful consideration should be given to design so adjoining one-family and two-family development is not adversely affected.

2. Subarea 1-B Policies (Map 1-B). Nonresidential zoning changes should be limited to ON or OL zoning only for minor boundary adjustments, where appropriate, along existing ORI and ON or OL district boundaries. Higher density residential zoning is not appropriate unless accessibility is substantially improved to major arterial streets other than West End Avenue, such as Charlotte Pike, and traffic studies conducted by the metropolitan planning commission and metropolitan traffic and parking commission determine that satisfactory levels of traffic service can be maintained with the higher densities in this subarea.

3. Subarea 1-C Policies (Map 1-C). For portions of the subarea presently zoned ORI, any changes to any base or overlay zone districts which permits a broader range of nonresidential land uses in inappropriate. Limited expansion of nonresidential zoning into Subarea 1-B or 1-F to facilitate good site design for office development fronting along West End Avenue is appropriate only when it is consistent with the policies for the affected subarea and does not materially deteriorate traffic conditions on West End Avenue.

4. Subarea 1-D Policies (Map 1-D). Rezoning to any nonresidential base or overlay district is inappropriate. High-density residential development should be limited

to the frontage of West End Avenue and should not extend to the frontage of streets parallel to and one block removed from West End Avenue. In areas zoned for one-family or two-family type residential uses, residential planned unit developments with one-family and two-family type housing only are appropriate; changes to higher density base districts in these areas are not appropriate. Residential uses along secondary streets should be protected by preserving the primary function of these streets of serving institutionally and residentially generated traffic from this and adjoining areas.

5. Subarea 1-E Policies (Map 1-E). Rezoning any portion of this subarea to any nonresidential base or overlay district would be inappropriate. Residential base zoning district changes to permit higher densities should be based on a detailed traffic study conducted by the metropolitan traffic and parking commission and the metropolitan planning commission that determines that traffic from additional development in the area together with that generated from currently projected development of 2000 outside of this area can be satisfactorily accommodated within available transportation system capacity. Planned unit development overlay zoning should be used to accommodate residential developments with site designs and housing types not achievable through conventional subdivisions. Development in this area should not result in excessive traffic on secondary streets in adjoining existing residential areas. Whenever roadway improvements and studies allow for consideration of additional development beyond that permitted by present zoning, the densities established for residential medium density and use policy categories should be used to determine the maximum amount of residential development that would be appropriate in this area.

6. Subarea 1-F Policies (Map 1-F). A change in existing zoning to higher density residential or nonresidential base or overlay districts is appropriate only when all of the following conditions listed for each type of zone change are met:

a. In the case of a proposal for nonresidential zoning: (i) the proposal abuts existing nonresidential zoning property that has frontage on West End Avenue or Hillsboro Pike, (ii) the property proposed for rezoning is needed together with one or more parcels in the abutting nonresidential zone district in order to provide a development site with adequate depth and the entire development site is submitted for approval as a commercial planned unit development overlay district with the bulk and service characteristics of the proposed use designed to avoid adverse effects on adjoining residentially zoned areas and residentially used streets; for any such PUD along Hillsboro Pike, the intensity of development should not exceed that permitted in the OL base zone district;

b. In the case of a proposal for higher density residential zoning: The proposal is submitted for approval as a residential planned unit development overlay district and the proposed site: (i) is contiguous to an existing zone district which permits residential development of equal or greater density, (ii) has frontage on a collector or higher order street, (iii) is in the vicinity of an interstate highway interchange, and (iv) is located along the mapped boundary between two residential land use policy categories of the general plan, one of which is either medium-high or high density; or

c. In the case of residential development proposals in locations other than specified in subdivision (b), the proposal is submitted as a residential planned unit development and the following conditions are met: (i) existing base district zoning is not changed; (ii) the metropolitan planning commission and the metropolitan council strictly adhere to the metropolitan zoning requirements when proposals containing multifamily structures are submitted for consideration, and (iii) careful consideration is given to design and landscape buffering in all such proposals to protect adjoining residential uses.

7. Subarea 1-G Policies (Map 1-G). Rezoning to any nonresidential base or overlay district is inappropriate in this area. Base district zoning changes to permit higher densities should be avoided. Residential planned unit development overlay zoning may be considered in the area between Interstate 440 and Sharondale Drive provided: (a) such developments contain only one-family and/or two-family type housing; and (b) the conditions hazardous to traffic and pedestrians along Sharondale Drive are first remedied. The area should be protected from heavy volumes of traffic resulting from any extensive development in adjoining areas, particularly Subarea 1-E.

8. Subarea 1-H Policies (Map 1-H). Zone changes which would permit nonresidential development are inappropriate. Residential development with mixed building types or multifamily structures are appropriate along both margins of Hillsboro Pike. All of the following conditions shall apply to any such development proposed along the west margin of Hillsboro Pike: (a) it is submitted as a planned unit development; (b) the proposed density does not exceed that permitted in the R10 base zone district; (c) it does not extend to a depth in excess of three hundred feet from the right-of-way line of Hillsboro Pike; (d) it is developed in a manner which is compatible with the character of existing adjoining residential development; and (e) it will not materially deteriorate traffic conditions on Hillsboro Pike.

9. Subarea 1-I Policies (Map 1-I). Rezoning to allow higher intensity office development or a greater diversity of commercial activities is inappropriate. Rezoning to

improve the depth of shallow building sites fronting on Hillsboro Pike may be considered along the eastern and western edges of this subarea and should be guided by the policies established for Subareas 1-F and 1-J.

10. Subarea 1-J Policies (Map 1-J). Residential base zone district changes to higher density zones should be avoided. Residential planned unit developments may be permitted in areas where lot sizes are substantially greater than minimum zoning requirements and prevailing lot sizes such as the lots fronting the west margin of Hazelwood Drive and lots fronting both sides of Cedar Lane west of Hazelwood Drive. Such PUDs should be limited to one-family and two-family type housing except where they would be between existing multifamily developments. Rezoning to nonresidential zones should be limited to commercial planned unit developments to improve the developability of shallow lots fronting on Hillsboro Pike provided: (a) the intensity of the development in the PUD does not exceed that permitted in the base zone of the lot fronting on Hillsboro Pike, (b) generous buffering is provided to protect adjacent residential uses, and (c) access is not oriented to the adjoining residential areas.

11. Subarea 1-K Policies (Map 1-K). Zone changes to permit nonresidential development are inappropriate. The application of residential planned unit development overlay zoning is appropriate in this subarea. The metropolitan planning commission and the metropolitan council should strictly adhere to the requirements in Article II of this chapter when proposals containing multifamily structures are submitted for consideration. In addition, careful consideration should be given to design and landscape buffering in all such proposals to protect adjoining residential uses.

12. Subarea 1-L Policies (Map 1-L). Residential base district zoning changes to higher density zones should be avoided. Reduced site size residential planned unit developments should be considered and should be limited to one-family and two-family type housing structures. No rezoning to nonresidential base or overlay zone districts should be permitted. (Ord. 96-555 § 9.10(C), 1997)

17.36.390 I-440 Impact Area 2.

The following policies shall be applicable to I-440 Impact Area 2.

A. Overview and Applicability. Policies are presented in two parts: Those applicable throughout Impact Area 2 and those applicable only within specific subareas of Impact Area 2. The policies shall apply to zone change proposals that have been determined by the metropolitan council to be related to the presence and/or operational effects of Interstate 440.

B. Adoption of Impact Area Maps. The maps attached to the ordinance codified in this section and on file in the office of the metropolitan clerk delineating Impact Area 2 and its subareas are adopted as part of this title and may be viewed upon request at the office of the metropolitan clerk.

C. Impact Area 2-Areawide Policies. The policies set forth in this section shall apply within Impact Area 2 as delineated on Map 2.

1. Proximity to Interstate 440, in and of itself, does not make an area unsuitable for residential use, since the design of the interstate incorporates features which minimize the facility's negative auditory and visual impacts.

2. Where Concept 2010: A General Plan for Nashville and Davidson County, identifies an area to be conserved for residential use, zoning should reflect that policy at the density indicated. Where the land use policy map identifies an area for nonresidential use, but the zoning has remained residential, changes in zoning should be considered in terms of a managed transition that will create minimum conflicts between uses.

3. Conflicts between new and existing uses may best be resolved by the use of planned unit development overlay zoning, because it provides the opportunity to address site design, buffering, traffic and other considerations.

4. Zone changes should be subject to the availability of street, utility and drainage capacity.

D. Impact Area 2-Subarea Policies. The policies set forth in this subsection shall be applicable only within the specific subarea referenced.

1. Subarea 2-A Policies (Map 2-A). Retain the current R6 and R6-A base zone throughout the subarea.

2. Subarea 2-B Policies (Map 2-B). The R6 and R6-A base zone should be maintained. There should be no expansion of the small CS and CS-A strip. Residential planned unit developments of mixed structure types should be considered, if an amendment to the general plan is considered simultaneously.

3. Subarea 2-C Policies (Map 2-C). Expansion of nonresidential or introduction of higher density residential zoning districts would be inappropriate, except the lots abutting the west margin of Hester Avenue may be considered for nonresidential if combined with the Nolensville Pike lots with all access to Nolensville Pike and the Nolensville Pike portion reclassified to CS and CS-A. Reduced site size residential planned unit developments at densities allowed in the base zoning district would be acceptable south of Vivelle Avenue.

4. Subarea 2-D Policies (Map 2-D). Expansion of nonresidential zoning or introduction of higher density residential zoning would not be appropriate. Residential planned unit development should be considered.

5. Subarea 2-E Policies (Map 2-E). Zone changes to industrial uses would be inappropriate. If a mixed-use zoning district is made available, its application to this area would not be contrary to this policy.

6. Subarea 2-F Policies (Map 2-F). Expansion of the existing RM20, ON, OL, CN and CN-A, CL and CL-A, CS and CS-A zoning districts would not be appropriate. While the R6 base zone should be retained, application of the residential planned unit development overlay, along the southern, western and northern boundaries, would be appropriate if building types are similar to those in the subarea.

7. Subarea 2-G Policies (Map 2-G). Expansion of the existing CS and CS-A, IWD and RM20 zoning districts is not appropriate. Expansion of the ON or OL zoning districts should be confined to parcels fronting the south margin of Thompson Lane, from the existing OL to the west margin of Dobbs Avenue, and should be allowed only in an orderly progression. Use of residential planned unit development overlays would be appropriate in the development of the large vacant tracts within the R10 base zone. (Ord. BL2015-1153 § 15, 2015; Ord. 96-555 § 9.10(D), 1997)

Article XI. Neighborhood Landmark District

17.36.400 Purpose and intent.

The neighborhood landmark district provisions are established by this title to preserve and protect neighborhood features that are important to maintain and enhance the neighborhood character. Neighborhood features are defined as buildings, structures, objects, sites, and areas of historic, cultural, civic, neighborhood, or architectural value and/or importance to Metropolitan Nashville and Davidson County. The provisions of this title are intended:

A. To regulate exterior design, arrangement, texture, and materials proposed to be used within the neighborhood landmark districts to ensure protection of the identified feature and compatibility with surrounding uses;

B. To create an aesthetic appearance which complements the existing buildings, structures, objects, sites, and areas of value or importance on-site;

C. To stabilize and improve property values;

D. To foster civic beauty;

E. To enhance a neighborhood by providing a strong sense of place;

F. To protect the neighborhood character and context by preserving existing neighborhood fabric while permitting reasonable use of a property;

G. To strengthen the local economy; and

H. To promote the use of neighborhood landmark districts for the education, pleasure and welfare of the present and future citizens of Nashville and Davidson County. (Ord. BL2000-365 Exh. A (part), 2000)

17.36.410 District established.

Neighborhood Landmark (NL) District. The boundaries shall be shown on the zoning map or special overlays thereto that are made a part of this Zoning Code and noted by name on such maps, in which no feature shall be constructed, altered, repaired, relocated or demolished in whole or in part, increased in size, or changed in height unless the action complies with the requirements set forth in this title. (Ord. BL2000-365 Exh. A (part), 2000)

17.36.420 District defined.

A neighborhood landmark is defined as a feature, its appurtenances and the property it is located on which has historical, cultural, architectural, civic, neighborhood, or archaeological value and/or importance; whose demolition or destruction would constitute an irreplaceable loss to the quality and character of a neighborhood within Nashville and Davidson County, and that meets one or more of the following criteria:

1. It is recognized as a significant element in the neighborhood and/or community;

2. It embodies characteristics that distinguish it from other features in the neighborhood and/or community;

3. Rezoning the property on which the feature exists to a general zoning district inconsistent with surrounding or adjacent properties such as, office, commercial, mixed-use, shopping center, or industrial zoning district would significantly impact the neighborhood and/or community;

4. Retaining the feature is important in maintaining the cohesive and traditional neighborhood fabric;

5. Retaining the feature will help to preserve the variety of buildings and structures historically present within the neighborhood recognizing such features may be differentiated by age, function and architectural style in the neighborhood and/or community; and

6. Retaining the feature will help to reinforce the neighborhood and/or community's traditional and unique character. (Ord. BL2000-365 Exh. A (part), 2000)

Article XII. Urban Zoning Overlay District

17.36.430 Purpose and intent.

The primary intent of the urban zoning overlay district is to preserve and protect existing development patterns that predate the mid-1950's in portions of metro Nashville that were originally developed before that time and to ensure the compatibility of new development in those older portions of the city. In addition, the urban zoning overlay district is intended to promote reinvestment in areas of metro Nashville originally developed before the mid-1950s by modifying development standards that could add unnecessary expense without improving the safety or compatibility of resulting development. The urban zoning overlay district is also intended to implement provisions of adopted plans that call for particular areas to evolve to a development pattern characterized predominantly by lot sizes, street patterns, and alley systems commonly used before the mid-1950s. (Ord. BL2000-364 § 1, 2000)

17.36.440 Applicability.

The provisions of the urban zoning overlay district shall apply to all properties located within a mapped area indicated on a zoning overlay map adopted pursuant to the provisions of Article III of Section 17.40, excluding planned unit developments adopted prior to the effective date of the establishment of the urban zoning overlay district and properties zoned DTC district. However, the UZO District maximum parking space standard shall apply within the DTC. Petitions should contain a minimum of one hundred sixty acres of land in order to avoid piecemeal application of the district and should be for areas characterized predominantly by lot sizes, street patterns, and alley systems commonly used before the mid-1950s or for areas where an adopted plan calls for the evolution of such a development pattern. When properties included in a petition are within the area defined by the 1956 limits of the City of Nashville, they should be contiguous to a previously adopted urban zoning overlay district. For purposes of determining applicability of the urban zoning overlay district provisions within any other overlay district, the urban zoning overlay district provisions shall be treated as base zoning district provisions. (Ord. BL2022-1412 § 4, 2022; Ord. BL2009-586 § 1(Exh. A, § 44), 2010; Amdt. 10 with Ord. BL2000-364 § 1, 2000)

[Article XIII. Contextual Overlay District]

17.36.450 Purpose and intent.

The contextual overlay district provides appropriate design standards for residential areas necessary to maintain and reinforce an established form or character of residential development in a particular area. (Ord. BL2014-771 § 1, 2014)

17.36.460 Overlay designation.

A contextual overlay district shall be created according to the procedures of Chapter 17.40, Article III and depicted as a geographical area on the official zoning map. (Ord. BL2014-771 § 1, 2014)

17.36.470 Design guidelines.

A. Street Setback. The minimum required street setback shall be the average of the street setback of the two developed lots abutting each side of the lot. When one or more of the abutting lots is vacant, the next developed lot on the same block face shall be used. The minimum provided in [Section] 17.12.030A and the maximum provided in [Section] 17.12.030C.3 shall not apply. Where there is only one abutting lot on the same block face, it shall be used for this calculation. When the subject lot is on a corner, the minimum required street setback shall be calculated and met for each street.

B. Height.

1. The maximum height, including the foundation, of any primary structure shall not be greater than thirty-five feet or one hundred twenty-five percent of the average height of the principal structures on the two lots abutting each side of the lot, whichever is less. When one of the abutting lots is vacant, the next developed lot on the same block face shall be used. Where there is only one abutting lot on the same block face, it shall be used for this calculation. When the subject lot is on a corner, the maximum height shall be calculated for each street and limited to thirty-five feet or one hundred twenty-five percent of the average height of the lesser value. When one hundred twenty-five percent of the average of the abutting structures is less than twenty-seven feet, a maximum height of one and one-half stories in twenty-seven feet shall be permitted.

2. The maximum height, including the foundation, of any accessory structure shall not be greater than twenty-seven feet.

3. For the purposes of this section, height shall be measured from grade or, if present, the top of a foundation which shall not exceed three feet above grade, to the roof line.

4. For the purposes of this section, "one-half story" means a partial story under a gable, hip, or gambrel roof, the wall plates of which, on at least two exterior walls, are not more than four feet above the floor of such story. A dormer shall not occupy more than fifty percent of the roof area. The floor area of said half story shall not exceed three-quarters of the floor area of the floor

immediately below it. A half story containing an independent dwelling unit or accessory apartment shall be deemed a full story.

C. Maximum building coverage. The maximum building coverage (excluding detached garages and other accessory buildings) shall be a maximum of one hundred fifty percent of the average of the building coverage (excluding detached garages and other accessory buildings) of the two abutting lots on each side. When the abutting lot is vacant, the next developed lot shall be used. Where there is only one abutting lot on the same block face, it shall be used for this calculation. When the subject lot is on a corner, the maximum building coverage shall be calculated and met for each street.

D. Access and driveways, garages and parking areas.

1. Access and Driveways.

a. Where existing, access shall be from an improved alley. Where no improved alley exists, a driveway within the street setback may be permitted.

b. For a corner lot, the driveway shall be located within thirty feet of the rear property line.

c. Driveways are limited to one driveway ramp per public street frontage.

d. Parking, driveways and all other impervious surfaces in the required street setback shall not exceed twelve feet in width.

2. Garages.

a. Detached. The front of any detached garage shall be located behind the rear of the primary structure. The garage door of a detached garage may face the street.

b. Attached. The garage door shall face the side or rear property line. (Ord. BL2024-184 § 6, 2024; Ord. BL2014-771 § 1, 2014)

17.36.480 Permitted land uses.

The range of land uses permitted within a contextual overlay district shall be those permitted by the underlying zoning district(s) as established by the zoning district land use table of Section 17.08.030. (Ord. BL2014-771 § 1, 2014)

17.36.490 Variation of conventional standards.

The contextual overlay district varies the conventional standards of the underlying zoning district(s) as established in Chapter 17.12, Sections 17.12.020 through 17.12.060; the parking, loading and access standards of Chapter 17.20; and the nonconforming lot area requirements of Section 17.40.670. (Ord. BL2014-771 § 1, 2014)

17.36.500 Contextual overlay district.

A. Application for a Contextual Overlay District. Lots included in a district must be contiguous and continuous throughout the residential portion of a complete block face(s).

B. Historic Overlay District. A contextual overlay shall not be applied in an adopted historic overlay district. Adoption of a historic overlay district shall supersede an adopted contextual overlay and only the requirements of the historic overlay district shall apply.

C. Planning Commission Recommendation. The planning commission shall review a proposed contextual overlay district application for conformance with the General Plan. The planning commission shall act to recommend approval, approval with conditions or disapproval of the application. Within ten working days of an action, the commission's resolution shall be transmitted in writing to the applicant, the metro clerk, the zoning administrator and all other appropriate governmental departments.

D. Council Consideration. The metropolitan council shall consider an ordinance establishing a contextual overlay district according to the procedures of Article III of Chapter 17.40 (Amendments). All property owners within and proximate to a proposed contextual overlay district shall be notified according to the procedures of Article XV of Chapter 17.40.

E. Final Site Plan Approval. For property located within a contextual overlay district, a final site plan application shall be submitted for review and approval by the Zoning Administrator in a manner consistent with the procedures of Section 17.40.170A. The applicant is required to submit all necessary information to the Zoning Administrator and to certify the accuracy of the submitted information.

F. Modifications to Design Standards Not Permitted. Contextual Overlay Districts shall be adopted with the standards outlined in [Section] 17.36.470 (Design guidelines). Modifications to these standards shall not be permitted. Variance requests shall follow the process outlined in Chapter 17.40.

G. Changes to a Contextual Overlay District Boundary. A proposed change in the geographic boundary of a contextual overlay district on the official zoning map shall be considered by the council according to the procedures of Article III of Chapter 17.40 (Amendments). (Ord. BL2014-771 § 1, 2014)

[Article XIV. Corridor Design Overlay District]

17.36.510 Purpose and intent.

The corridor design overlay district provides appropriate design standards for commercial, office and mixed-

use development along corridors necessary to provide incremental improvements to the aesthetics of Nashville's commercial districts and corridors. Application of this overlay district shall be limited to areas requiring transitional standards. (Ord. BL2019-1540 § 1, 2019)

17.36.520 Overlay designation.

A corridor design overlay district shall be created according to the procedures of Chapter 17.40, Article III and depicted as a geographical area on the official zoning map. (Ord. BL2019-1540 § 2, 2019)

17.36.530 Applicability of standards.

A. Signage standards apply to any and all new signs, and do not apply to panel changes to existing signs.

B. Landscaping standards apply to new parking lots, and to the expansion area of existing parking lots that are expanded by ten spaces or more.

C. Landscaping standards do not apply to existing parking lots, or re-surfacing or re-striping of existing parking lots.

D. Building materials standards apply to additions greater than fifty percent of the existing building's square footage, and new buildings. (Ord. BL2019-1540 § 3, 2019)

17.36.540 Variations to conventional standards.

Variations to the conventional standards of the underlying zoning district(s) are:

A. Properties in the corridor design overlay district are subject to the following variations regarding signage:

1. All standards of [Chapter] 17.32 Signage Regulations shall apply according to the zoning district of the property, except Table 17.32.130D.

2. In place of Table 17.32.130D, Table 17.32.120 shall apply. Any references to Table 17.32.130D shall be substituted with Table 17.32.120.

3. All notes from Table 17.32.130D shall apply to properties in CL, CL-NS, CS, CS-NS, CA, CA-NS, CF, CF-NS, SCC, SCC-NS, SCR, SCR-NS, IWD, IR and IG districts.

4. Any uses permitted with conditions are allowed one-half the maximum sign area allowed in [Section] 17.16.070. All other standards of [Section] 17.16.070 shall apply to uses permitted with conditions.

B. Properties in the corridor design overlay district are subject to the following variations regarding perimeter screening:

1. All standards of [Section] 17.24.150 shall apply, with the exception that trees shall be installed at a rate of one tree per thirty feet regardless of zoning district or elevation relative to the public street.

C. Properties in the corridor design overlay district are subject to the following variations regarding building materials:

1. Each building facade facing a public street or private drive shall be considered a primary facade as specified in Figure 17.36.540.C and is subject to all regulations regarding primary facades. The presence or absence of parking between the primary facade and the street or drive does not influence the designation as a primary facade. Any and all primary facades are subject to all regulations regarding primary facades.

2. For all calculations related to materials, the primary facade shall be calculated as the entire width of the building multiplied by the entire height of the building, less the width and height of each window or door system. The calculations below are based on the remaining non-glazed facade.

3. At least seventy-five percent of the primary facade shall be clad in material(s) selected from the following list: brick, brick veneer, stone, cast stone, and/or architecturally treated concrete masonry units, fiber cement products, and/ or material(s) substantially similar in form and function.

i. Concrete masonry units shall be spilt-face or otherwise treated with texture or visual interest.

ii. Materials changes shall occur along horizontal lines, not vertical lines.

4. All other building facades, including those facing interior property lines, rear property lines, loading lanes, etc. - are not primary facades therefore alternative materials not listed in 17.36.540.C.3 may be used. If used on non-primary facades, concrete masonry units shall be split-face or otherwise treated with texture or visual interest.

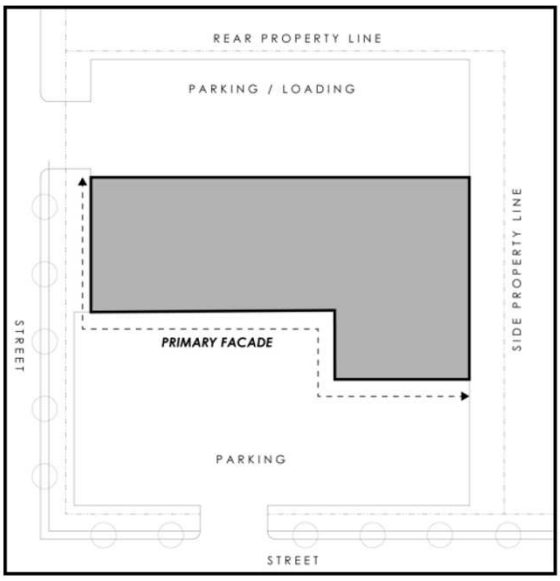


Figure 17.36.540.C.

(Ord. BL2021-1022 §§ 2, 3, 2022; Ord. BL2019-111 § 1(Exh. A, § 50), 2020; Amdt. 1 to Ord. BL2019-1540 § 4, 2019; Ord. BL2019-1540 § 4, 2019)

17.36.550 Permitted land uses.

The range of land uses permitted within a corridor design overlay district shall be those permitted by the underlying zoning district(s) as established by the zoning district land use table of Section 17.08.030. (Ord. BL2019-1540 § 5, 2019)

17.36.560 Corridor design overlay district.

A. Planning Commission Recommendation. The planning commission shall review a proposed corridor design overlay district application for conformance with the General Plan. The planning commission shall act to recommend approval, approval with conditions or disapproval of the application. Within ten working days of an action, the commission's resolution shall be transmitted in writing to the applicant, the metro clerk, the zoning administrator and all other appropriate governmental departments.

B. Council Consideration. The metropolitan council shall consider an ordinance establishing a corridor design overlay district according to the procedures of Article III of Chapter 17.40 (Amendments). All property owners within and proximate to a proposed corridor design overlay district shall be notified according to the procedures of Article XV of Chapter 17.40.

C. Final Site Plan Approval. For property located within a corridor design overlay district, a final site plan application shall be submitted for review and approval by the zoning administrator in a manner consistent with the procedures of Section 17.40.170A. The applicant is required to submit all necessary information to the zoning administrator and to certify the accuracy of the submitted information.

1. The plans and specifications submitted pursuant to this section shall be prepared by, or under the direction of, and bear the seal of a professional landscape architect, architect, engineer, or land planner registered in Tennessee. The presence of this seal indicates full compliance with the provisions of the corridor design overlay district.

2. Before the issuance of a use and occupancy permit, as-built drawings shall be submitted to certify compliance with the standards of this section. The as-built drawings shall be prepared by, or under the direction of, and bear the seal of a professional landscape architect, architect, engineer, or land planner registered in Tennessee. The presence of this seal indicates full compliance with the provisions of the corridor design overlay district.

D. Modifications to Design Standards. The zoning administrator shall have the authority to grant modifications to the standards of the corridor design overlay district that do not exceed twenty percent of any signage standard, landscaping requirement, or dimensional requirement relating to building materials. At the zoning administrator's discretion, any modification may be referred to the board of zoning appeals for review and action.

E. Changes to a Corridor Design Overlay District Boundary. A proposed change in the geographic boundary of a corridor design overlay district on the official zoning map shall be considered by the council according to the procedures of Article III of Chapter 17.40. (Amendments). (Ord. BL2019-1540 § 6, 2019)

Article XV. Residential Accessory Structure Overlay

17.36.570 Purpose and intent.

The residential accessory structure overlay district provides appropriate design standards and bulk regulations for accessory structures in residential areas necessary to maintain and reinforce an established form or character of residential development in a particular area. (Ord. BL2020-151 § 1, 2020)

17.36.580 Overlay designation.

A residential accessory structure overlay district shall be created according to the procedures of Chapter 17.40, Article III and depicted as a geographical area on the official zoning map. (Ord. BL2020-151 § 2, 2020)

17.36.590 Guidelines.

A. Number. A maximum of two accessory structures may be constructed on a lot.

B. Location. Accessory structures shall not be erected in any required setback and must be located to the rear of the principle structure.

C. Size. The combined gross floor area of all accessory structures on a lot shall be no more than thirty percent of the total gross floor area of the principal structure or one thousand two hundred square feet, whichever is less.

D. Height. Accessory structures shall not exceed one story or sixteen feet in height, whichever is less. The top elevation of an accessory structure shall not exceed the top elevation of the principal structure.

E. Materials. Accessory structures greater than one hundred fifty square feet in gross floor area must be constructed in a like manner to the principal building in terms of roof style and building materials. Alternative materials that are not metal, plastic, vinyl, or concrete masonry units may be used as primary siding materials for accessory structures greater than one hundred fifty square feet in gross floor area. Metal, plastic, vinyl, or concrete masonry units may be used if that same material is the primary material on the principal structure. (Ord. BL2021-1022 § 4, 2022; Ord. BL2020-151 § 3, 2020)

17.36.600 Permitted land uses.

The range of land uses permitted within a residential accessory structure overlay district shall be those permitted by the underlying zoning district(s) as established by the zoning district land use table of Section 17.08.030. (Ord. BL2020-151 § 4, 2020)

17.36.610 Variation of conventional standards.

The residential accessory structure overlay district varies the conventional standards of the underlying zoning district(s) as established in Chapter 17.12, Sections 17.12.050 and 17.12.060. (Ord. BL2020-151 § 5, 2020)

17.36.620 Residential accessory structure overlay district.

A. Application for a Residential Accessory Structure Overlay District. Lots included in a district must be contiguous.

B. Historic Overlay District. A residential accessory structure overlay district shall not be applied in an adopted historic overlay district. Adoption of a historic overlay district shall supersede an adopted residential accessory structure overlay district and only the requirements of the historic overlay district shall apply.

C. Contextual Overlay District. A residential accessory structure overlay district shall not be applied in an adopted contextual overlay district. Adoption of a contextual overlay district shall supersede an adopted residential accessory structure overlay district and only the requirements of the contextual overlay district shall apply.

D. Urban Design Overlay District. A residential accessory structure overlay district shall not be applied in an adopted urban design overlay district. Adoption of an urban design overlay district shall supersede an adopted residential accessory structure overlay district and only the requirements of the urban design overlay district shall apply.

E. Urban Zoning Overlay. A residential accessory structure overlay district shall not be applied in the adopted urban zoning overlay district. Expansion of the urban zoning overlay district shall supersede an adopted residential accessory structure overlay district and only the requirements of the urban zoning overlay district shall apply.

F. Eligible Zoning Districts. Residential accessory structure overlay districts shall only be applicable in single family (RS and RS-A) and one- and two-family (R and R-A) residential zoning districts. Residential accessory structure overlay districts shall not be applied to property within specific plan (SP) zoning districts.

G. Planning Commission Recommendation. The planning commission shall review a proposed residential accessory structure overlay district application for conformance with the general plan. The planning commission shall act to recommend approval, approval with conditions or disapproval of the application. Within ten working days of an action, the commission's resolution shall be transmitted in writing to the applicant, the metro clerk, the zoning administrator and all other appropriate governmental departments.

H. Council Consideration. The metropolitan council shall consider an ordinance establishing a residential accessory structure overlay district according to the procedures of Article III of Chapter 17.40 (Amendments). All property owners within and proximate to a proposed residential accessory structure overlay district shall be notified according to the procedures of Article XV of Chapter 17.40.

I. Final Site Plan Approval. For property located within a residential accessory structure overlay district, a final site plan application shall be submitted for review and approval by the zoning administrator in a manner consistent with the procedures of Section 17.40.170A. The applicant is required to submit all necessary information to the zoning administrator and to certify the accuracy of the submitted information.

J. Modifications to Design Standards Not Permitted. Residential accessory structure overlay districts shall be adopted with the standards outlined in 17.36.590 (Guidelines). Modifications to these standards shall not be permitted. Variance requests shall follow the process outlined in Chapter 17.40.

K. Changes to a Residential Accessory Structure Overlay District Boundary. A proposed change in the geographic boundary of a residential accessory structure overlay district on the official zoning map shall be considered by the council according to the procedures of Article III of Chapter 17.40 (Amendments). (Ord. BL2020-316 § 3, 2020; Ord. BL2020-151 § 6, 2020)

Article XVI. Two-Story Residential Overlay

17.36.630 Purpose and intent.

The two-story residential overlay district provides appropriate building height standards in residential areas necessary to maintain and reinforce the established form and character of residential development in a particular area. (Ord. BL2022-1509 § 1, 2023)

17.36.640 Overlay designation.

A two-story residential overlay district shall be created according to the procedures of Chapter 17.40, Article III and depicted as a geographical area on the official zoning map. (Ord. BL2022-1509 § 1, 2023)

17.36.650 Guidelines.

A. Principal Structures. Principal structures shall not exceed two stories in thirty-five feet in height as measured from the finished grade. (Amdt. 1 to Ord. BL2022-1509 § 1, 2023; Ord. BL2022-1509 § 1, 2023)

17.36.660 Permitted land uses.

The range of land uses permitted within a two-story residential overlay district shall be those permitted by the underlying zoning district(s) as established by the zoning district land use table of Section 17.08.030. (Ord. BL2022-1509 § 1, 2023)

17.36.670 Variation of conventional standards.

The two-story residential overlay district varies the conventional standards of the underlying zoning district(s) as established in Chapter 17.12, Sections 17.12.020 and 17.12.060. (Ord. BL2022-1509 § 1, 2023)

17.36.675 Two-story residential overlay district.

A. Application for a Two-Story Residential Overlay District. Lots included in a district must be contiguous.

B. Historic Overlay District. A two-story residential overlay district shall not be applied in an adopted historic overlay district. Adoption of a historic overlay district shall supersede an adopted two-story residential overlay district and only the requirements of the historic overlay district shall apply.

C. Contextual Overlay District. A two-story residential overlay district shall not be applied in an adopted contextual overlay district. Adoption of a contextual overlay district shall supersede an adopted two-story residential overlay district and only the requirements of the contextual overlay district shall apply.

D. Urban Design Overlay District. A two-story residential overlay district shall not be applied in an adopted urban design overlay district. Adoption of an urban design overlay district shall supersede an adopted two-story residential overlay district and only the requirements of the urban design overlay district shall apply.

E. Urban Zoning Overlay. A two-story residential overlay district shall not be applied in the adopted urban zoning overlay district. Expansion of the urban zoning overlay district shall supersede an adopted two-story residential overlay district and only the requirements of the urban zoning overlay district shall apply.

F. Eligible Zoning Districts. Two-story residential overlay districts shall only be applicable in single family (RS and RS-A) and one- and two-family (R and R-A) residential zoning districts. Two-story residential overlay districts shall not be applied to property within specific plan (SP) zoning districts.

G. Planning Commission Recommendation. The planning commission shall review a proposed two-story residential overlay district application for conformance with the general plan. The planning commission shall act to recommend approval, approval with conditions or disapproval of the application. Within ten working days of an action, the commission's resolution shall be transmitted in writing to the applicant, the metro clerk, the zoning administrator, and all other appropriate governmental departments.

H. Council Consideration. The metropolitan council shall consider an ordinance establishing a two-story residential overlay district according to the procedures of Article III of Chapter 17.40 (Amendments). All

property owners within and proximate to a proposed two-story residential overlay district shall be notified according to the procedures of Article XV of Chapter 17.40.

I. Final Site Plan Approval. For property located within a two-story residential overlay district, a final site plan application shall be submitted for review and approval by the zoning administrator in a manner consistent with the procedures of Section 17.40.170A. The applicant is required to submit all necessary information to the zoning administrator and to certify the accuracy of the submitted information.

J. Modifications to Design Standards Not Permitted. Two-story residential overlay districts shall be adopted with the standards outlined in 17.36.650 (Guidelines). Modifications to these standards shall not be permitted. Variance requests shall follow the process outlined in Chapter 17.40.

K. Changes to a Two-Story Residential Overlay District Boundary. A proposed change in the geographic boundary of a two-story residential overlay district on the official zoning map shall be considered by the council according to the procedures of Article III of Chapter 17.40 (Amendments). (Ord. BL2024-595 § 1, 2024; Ord. BL2022-1509 § 1, 2023)

Article XVII. Detached Accessory Dwelling Unit (DADU) Overlay District

17.36.680 Purpose and intent.

The Detached Accessory Dwelling Unit (DADU) overlay district provides additional housing options in the General Services District (GSD), outside of the Urban Service District (USD). Any DADU Overlays previously adopted may remain in effect until the metropolitan council adopts an ordinance canceling all or part of such DADU overlay district. (Ord. BL2025-1007 § 7, 2025; Ord. BL2021-784 § 1, 2021; Ord. BL2021-620 § 1, 2021)

17.36.690 Overlay designation.

A DADU overlay district shall only be created within the GSD, outside of the USD, according to the procedures of Chapter 17.40, Article III and depicted as a geographical area on the official zoning map. Any DADU Overlay previously adopted may remain in effect until the metropolitan council adopts an ordinance canceling all or part of such DADU overlay district. (Ord. BL2025-1007 § 8, 2025; Ord. BL2021-784 § 2, 2021; Ord. BL2021-620 § 1, 2021)

17.36.700 Design guidelines.

A detached self-sufficient dwelling unit shall be allowed accessory to a principal structure subject to the standards set forth in Section 17.16.030.G of this zoning code. (Ord. BL2021-620 § 1, 2021)

17.36.710 Permitted land uses.

The range of land uses permitted within a DADU overlay district shall be those permitted by the underlying zoning district(s) as established by the zoning district land use table of Section 17.08.030 and detached accessory dwelling unit. On any lot where a new detached accessory dwelling unit is built, or on any lot where a new detached accessory dwelling unit is established via conversion of an existing accessory structure, short term rental property-owner occupied, is not a permitted use in the accessory dwelling unit. (Ord. BL2025-1007 § 9, 2025; Ord. BL2024-184 § 7, 2024; Amdt. 1 to Ord. BL2021-620 § 1, 2021; Ord. BL2021-620 § 1, 2021)

17.36.720 Bulk provisions.

The bulk provisions of the base zoning district shall apply. (Ord. BL2021-620 § 1, 2021)

17.36.730 Detached Accessory Dwelling Unit Overlay District.

A. Application of a DADU overlay.

1. A DADU overlay may be applied to properties zoned AR2a, AG, R/R-A, RS/RS-A or properties where a DADU is a legally permitted use prior to the establishment of the overlay.

2. A DADU overlay shall consist of a minimum of 30 contiguous lots. For the purposes of this overlay, lots on opposing block faces and opposite sides of alleys shall be considered contiguous.

3. Properties within a DADU overlay shall not share lot lines with single-family residential zoned properties that are not in the overlay district.

B. Planning Commission Recommendation. The planning commission shall review a proposed DADU overlay district application for conformance with the General Plan. The planning commission shall act to recommend approval or disapproval of the application. Within ten working days of an action, the commission's resolution shall be transmitted in writing to the applicant, the metro clerk, the zoning administrator and all other appropriate governmental departments.

C. Council Consideration. The metropolitan council shall consider an ordinance establishing a DADU overlay district according to the procedures of Article III of this chapter (Amendments). All property owners within and

proximate to a proposed DADU overlay district shall be notified according to the procedures of Article XV of this chapter.

D. Final Site Plan Approval. For property located within a DADU overlay district, a final site plan application shall be submitted for review and approval by the Zoning Administrator in a manner consistent with the procedures of Section 17.40.170A. The applicant is required to submit all necessary information to the Zoning Administrator and to certify the accuracy of the submitted information.

E. Changes to a DADU Overlay District Boundary. A proposed change in the geographic boundary of a DADU overlay district on the official zoning map shall be considered by the council according to the procedures of Article III of this chapter (Amendments). (Ord. BL2025-1007 § 10, 2025; Amdt. 1 to Ord. BL2021-620 § 1, 2021; Ord. BL2021-620 § 1, 2021)

Article XVIII. Commercial Compatibility Overlay

17.36.740 Purpose and intent.

The commercial compatibility overlay district provides prohibitions and regulations on certain non-residential uses along collector and local streets in close proximity to residential lots to create a commercial development pattern that is compatible and harmonious with adjacent residential neighborhoods. (Ord. BL2025-909 § 2, 2025)

17.36.750 Overlay designation.

A commercial compatibility overlay district shall be created according to the procedures of Chapter 17.40, Article III and depicted as a geographical area on the official zoning map. (Ord. BL2025-909 § 3, 2025)

17.36.760 Permitted land uses.

The range of land uses permitted within a commercial compatibility overlay district shall be those permitted by the underlying zoning district(s) as established by the zoning district land use table of Section 17.08.030 with the exception that alternative financial services and beer and cigarette market uses shall be prohibited. The locations of automobile repair, car wash, and liquor sales shall be subject to a 2,640-linear foot distance requirement from the property line of any other property upon which the same use is located. Such uses newly proposed in a commercial compatibility overlay district shall be subject to the above distance requirements from any such uses currently existing both inside and outside of a commercial compatibility overlay. (Ord. BL2025-909 § 4, 2025)

17.36.770 Variation of conventional land use development standards.

Variations to the conventional land use development standards are:

A. Automobile convenience uses are subject to the following conditions:

1. All standards and conditions of Section 17.16.070, Subsection D shall apply except for Subsections D.3 and D.5.

2. There shall be no more than eight gasoline pumps per establishment

3. No car wash shall be permitted.

4. No equipment rental shall be permitted.

5. Except for access points, the use shall be fully screened from adjacent parcels zoned RS, R, or RM by an appropriate buffer yard as determined by Table 17.24.230 and an eight-foot tall opaque fence or masonry wall.

B. Automobile parking uses are subject to the following conditions:

1. Chain link fence, barbed wire, razor wire or similar fencing shall be prohibited.

2. No inoperable vehicles shall be stored on the premises overnight.

3. Except for access points, the parking area shall be fully screened from adjacent parcels zoned RS, R, or RM by an appropriate buffer yard as determined by Table 17.24.230 and an eight-foot tall opaque fence or masonry wall.

C. Automobile repair, automobile service, and car wash uses are subject to the following conditions:

1. Chain link fence, barbed wire, razor wire or similar fencing shall be prohibited.

2. Outdoor storage or outdoor display of product shall be prohibited.

3. Service doors shall be oriented away from any parcel that contains a residential dwelling unit.

4. Except for access points, the use shall be fully screened from adjacent parcels zoned RS, R, or RM by an appropriate buffer yard as determined by Table 17.24.230 and an eight-foot tall opaque fence or masonry wall.

D. Bar or nightclub uses are subject to the following conditions:

1. All standards and conditions of Section 17.16.070, Subsection G shall apply.

2. Outdoor service or seating areas must be at least one hundred feet from the nearest property line of any parcel zoned RS or R and ten feet from the nearest property line of any other parcel.

3. Outdoor sound amplification is not permitted between the hours of nine p.m. and ten a.m.

4. Operation of the establishment shall be prohibited between the hours of twelve a.m. and nine a.m.

5. Except for access points, the use shall be fully screened from adjacent parcels zoned RS, R, or RM by an appropriate buffer yard as determined by Table 17.24.230 and an eight-foot tall opaque fence or masonry wall.

E. Club uses are subject to the following conditions:

1. No more than one establishment is permitted per lot.

2. Outdoor service or seating areas must be at least one hundred feet from the nearest property line of any parcel zoned RS or R and ten feet from the nearest property line of any other parcel.

3. Outdoor sound amplification is not permitted between the hours of nine p.m. and ten a.m.

4. Operation of the establishment shall be prohibited between the hours of twelve a.m. and nine a.m.

5. Except for access points, the use shall be fully screened from adjacent parcels zoned RS, R, or RM by an appropriate buffer yard as determined by Table 17.24.230 and an eight-foot tall opaque fence or masonry wall.

F. Commercial amusement, inside uses are subject to the following conditions:

1. No more than one establishment is permitted per lot.

2. Outdoor service or seating areas must be at least one hundred feet from the nearest property line of any parcel zoned RS or R and ten feet from the nearest property line of any other parcel.

3. Outdoor sound amplification is not permitted between the hours of nine p.m. and ten a.m.

4. Operation of the establishment shall be prohibited between the hours of twelve a.m. and nine a.m.

5. Except for access points, the use shall be fully screened from adjacent parcels zoned RS or R by an appropriate buffer yard as determined by Table 17.24.230 and an eight-foot tall opaque fence or masonry wall. (Amdt. 1 to Ord. BL2025-909 § 5, 2025; Ord. BL2025-909 § 5, 2025)

17.36.780 Commercial compatibility overlay district.

A. Application of the Commercial Compatibility Overlay District. Lots and parcels included in a district must have some portion of their frontage along one or more collector avenues as identified in the Major and Collector Street Plan or along one or more local streets, be contiguous, and be located within one hundred feet of a lot or parcel zoned RS, R, or RM. Each district shall consist of no more than fifty total acres.

B. Eligible Zoning Districts. Commercial compatibility overlay districts shall only be applicable in mixed use, office, commercial, and shopping center zoning districts. Commercial compatibility overlay districts shall not be applicable to the DTC zoning district.

C. Planning Commission Recommendation. The planning commission shall review a proposed commercial compatibility overlay district application for conformance with the General Plan. The planning commission shall act to recommend approval, approval with conditions, or disapproval of the application. Within ten working days of an action, the commission's resolution shall be transmitted in writing to the applicant, the metropolitan clerk, the zoning administrator, and all other appropriate governmental departments.

D. Council Consideration. The metropolitan council shall consider an ordinance establishing a commercial compatibility overlay district according to the procedures of Article III of Chapter 17.40 (Amendments). All property owners within and proximate to a proposed Commercial Compatibility Overlay district shall be notified according to the procedures of Article XV of Chapter 17.40.

E. Changes to a Commercial Compatibility Overlay District Boundary. A proposed change in the geographic boundary of a commercial compatibility overlay district on the official zoning map shall be considered by the Council according to the procedures of Article III of Chapter 17.40 (Amendments). (Ord. BL2025-909 § 6, 2025)

Chapter 17.37

DOWNTOWN CODE (DTC)

Sections:

17.37.010 Downtown Code (DTC) adopted.

17.37.010 Downtown Code (DTC) adopted.

The metropolitan government adopts the DTC to be applicable throughout the metropolitan government. A copy of such DTC is attached to the ordinance codified in this section and made a part hereof, the same as if copied verbatim herein. (Ord. BL2025-799 § 1(Exh. A), 2025; Amdt. 1 to Ord. BL2025-761 § 1(Exh. A), 2025; Ord. BL2025-761 § 1(Exh. A), 2025; Ord. BL2024-452 § 1(Exh. B), 2024; Ord. BL2022-1472 § 1, 2022; Ord. BL2022-1412 § 5, 2022; Ord. BL2022-1216 § 2, 2022; Ord. BL2021-923 §§ 1—5, 2021; Ord. BL2021-869 § 1, 2021; Ord. BL2021-868 § 1, 2021; Ord. BL2020-334 §§ 1, 2, 2020; Ord. BL2017-827 § 1, 2017; Ord. BL2016-133 § 3, 2016; Amdt. 1 to Ord. BL2015-1253 § 1, 2015; Ord. BL2015-1253 § 1, 2015; Amdt. 2 to Ord. BL2015-1053 § 2, 2015; Ord. BL2015-1053 § 2, 2015; Ord. BL2015-1048 § 2, 2015; Ord. BL2013-376 §§ 1—3, 2013; Ord. BL2012-142 § 1, 2012; Amdt. 1 to Ord. BL2011-896 § 1, 2011; Ord. BL2011-896 § 1, 2011; Ord. BL2009-586 § 1(Exh. A, § 45), 2010)

Editor's note—For ease of access, a copy of the DTC is available at the following web location: https://www.nashville.gov/departments/planning/long-range-planning/community-plans/downtown/downtown-code-dtc.

Chapter 17.38

DESIGN-BASED MULTI-FAMILY

Sections:

17.38.010	**Design-Based Multi-Family adopted.**
17.38.010.A	**Residential Neighborhood.**
17.38.010.B	**Residential Limited.**
17.38.010.C	**Administration.**
17.38.020.A	**Purpose.**
17.38.020.B	**Building Types.**
17.38.020.C	**Interpreting Standards.**
17.38.020.D	**Definitions.**
17.38.020.E	**Overview.**
17.38.020.F	**Single Family/Two Family.**
17.38.020.G	**Townhouse.**
17.38.020.H	**House Court.**
17.38.020.I	**Townhouse Court.**
17.38.020.J	**Plex House.**
17.38.020.K	**Manor House.**
17.38.020.L	**Multiplex.**
17.38.020.M	**Low-rise Courtyard Flats.**
17.38.020.N	**Low-rise Flats.**
17.38.030.A	**Purpose.**
17.38.030.B	**Frontage Types.**
17.38.030.C	**Overview.**
17.38.030.D	**Porch Projecting.**
17.38.030.E	**Porch Engaged.**
17.38.030.F	**Dooryard.**
17.38.030.G	**Stoop.**
17.38.030.H	**Terrace.**

17.38.010 Design-Based Multi-Family adopted.

The metropolitan government adopts Design-Based Multi-Family to be applicable throughout the metropolitan government. A copy of such standards is attached to the ordinance codified in this section and made a part hereof, the same as if copied verbatim herein. (Ord. BL2025-1005 § 1(Exh. A), 2025)

Editor's note—The Design-Based Multi-Family standards, as attached to Substitute BL2025-1005, § 1(Exh. F), passed Dec. 4, 2025, effective April 1, 2026, have been copied verbatim to read as herein set out.

17.38.010.A Residential Neighborhood.

1. **Intent.** Intended for residential development, generally in the form of houses or townhouses, with private or shared open space. This district is appropriate for providing lower levels of density at strategic locations in urban and suburban areas—such as in transition zones near corridors, close to community amenities like parks and schools, or in areas with good access to arterial streets. Preference is given to locations with mass transit service.

2. **Zones.**

Zones	Context
Residential Neighborhood 1 (RN1)	Suburban
Residential Neighborhood 2 (RN2)	Urban

3. **Allowed Building Types.**

Single Family
Two Family
Townhouse
House Court
Townhouse Court
Plex House
Manor House (RN2 only)

Note 1: Detached Accessory Dwelling Units allowed with Single Family Building Types with conditions from Section 17.16.30.G, except for lot area, height, and setbacks, which are regulated by this chapter.

Note 2: Not-owner occupied Short Term Rentals are prohibited. Owner-occupied Short Term Rentals allowed with Single Family Building Type only per Section 6.28.30.

Note 3: Non-residential uses are permitted per Table 17.08.030 and are subject to the bulk standards for R6 in Table 17.12.020B.

4. **Lot.**

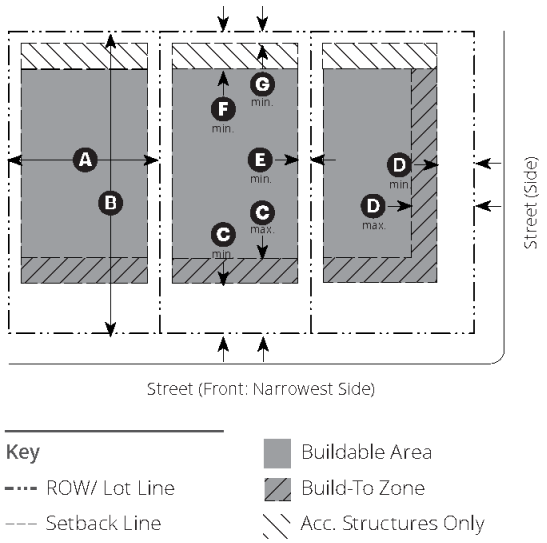
Lot Size		RN1	RN2
Area		6,000 sf min.	5,000 sf min
Width	A	60' min.	40' min.
Depth	B	90' min.	90' min.
RN minimum lot area, lot width, and lot depth requirements shall be waived if in compliance with Section 17.40.670 and one of the following conditions are met: • The site has access to a side street or improved alley. • The width of the primary structure's main body is at least 18 feet wide, and the highest roofline of the primary structure does not exceed a ratio of 1.0 horizontal to 1.5 vertical.			

5. **Building Placement.**

Setback		RN1	RN2
Front (Build-To Zone)	C	20' min.; 30' max.	10' min.; 25' max
Side Street (Build-To Zone)	D	15' min.; 25' max.	5' min.; 15' max.
Side	E	5' min.	5' min.
Rear			
Main Building	F	15' min.	15' min.
Accessory Structure(s)	G	5' min.	5' min.
Build-to shall align with the contextual setback (see Section 17.12.030.c(3)) when (1) the lot depth beyond the contextual setback is equal to or greater than the minimum lot depth required of the district or (2) the contextual setback is less than the build-to zone maximum. Otherwise, the build-to zone maximum is used.			
Facade Zone		**RN1**	**RN2**
Main building shall define required % of the linear length of the Front Build-To Zone		50% min.	50% min.
Main building shall define required % of the linear length of the Side Street Build-To Zone		30% min.	30% min.
Encroachments into Setbacks			
Private Frontage Types may encroach into front and side street setbacks; and shall not be located in side or rear setbacks.			
Architectural features may encroach up to 3 feet toward shared interior property lines, and up to 5 feet in all other building setbacks. Architectural features cannot cross property lines.			
Fences, freestanding landscape walls, shrubs, and landscaping may encroach up to 3 feet into front or side street setbacks; and are allowed within side and rear setbacks.			
Stormwater features may encroach into setbacks.			
Encroachments are not allowed within utility easement area, ROW, alley, or across a property line.			

Landscape Buffer
See Table 17.24.230 for landscape buffer yard requirements.
Landscape buffer yards within RN vary by building type.
No landscape buffer yard is required between properties zoned RN, regardless of building type.
No landscape buffer yard is required between properties zoned RN and RL.

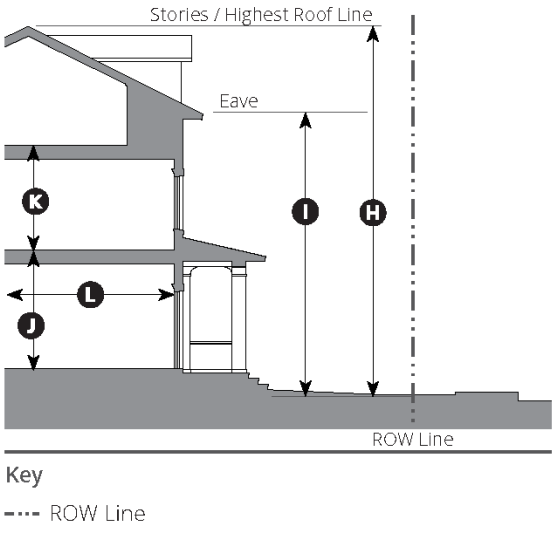
Figure: 17.38.010.A(1). For A, B, C, D, E, F, and G see lettered sections in 17.38.010.A Table 4 and Table 5 for minimum and maximum requirements.



6. **Building Form.**

Height		**RN1**	**RN2**
Main Building			
Stories		2.5 max.	3 max.
See Section 17.38.020 for additional height standards. Building type standards may further limit height. Height shall be measured from the average grade plane post-development.			
Highest Roof Line (H)	H	Maximums are set by building type.	
Highest Eave (I)	I		
Accessory Structure(s)			
Stories		2 max.	2 max.
Highest Roof Line		30' max.	30' max.
Highest Eave		24' max.	24' max
Floor-to-Floor		**RN1**	**RN2**
Ground Floor	J	9' min.	9' min.
Upper Floors	K	8' min.	8' min
Ground Floor Residential or Active Space		**RN1**	**RN2**
Depth of active ground floor use along front and side street façade	L	10' min.	10' min.
Coverage		**RN1**	**RN2**
Building Coverage		0.4 max.	0.5 max.
See Section 17.28 for Environmental Performance Standards.			

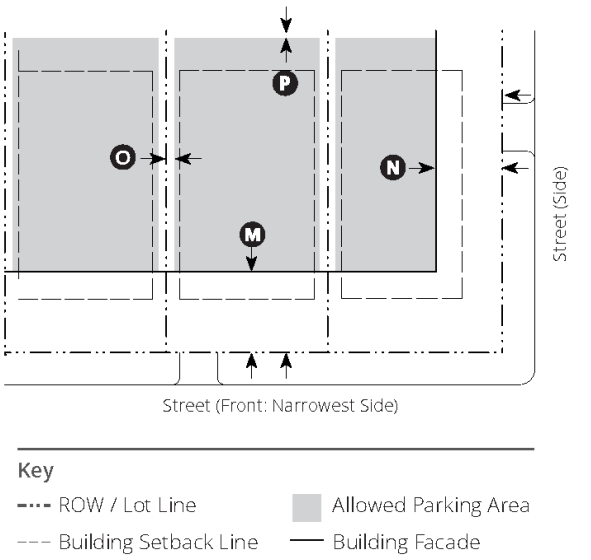
Figure: 17.38.010.A(2). For H, I, J, K, and L, see lettered sections in 17.38.010.A Table 6 for minimum and maximum requirements.



7. **Parking Location.**

Setback		**RN1**	**RN2**
Front	M	10' behind facade	10' behind facade
Side Street	N	10' behind facade	10' behind facade
Side	O	3' min.	3' min.
Rear	P	3' min.	3' min.
Dimensional Standards			
15 feet maximum width for driveway curb cuts; unless required to be wider by the fire department.			
Driveway curb cuts along an alley may be greater than 12 feet in width.			
Parking shall meet the dimensional standards set forth in Section 17.20.060 of the Metropolitan Code.			
Parking lot perimeter screening and interior planting requirements per Sections 17.24.140 and 17.24.160.			

Figure: 17.38.010.A(3). For M, N, O, and P, see lettered sections in 17.38.010.A Table 7 for requirements.



(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.010.B Residential Limited.

1. **Intent.** Intended for residential development, generally in the form of houses, townhouses, or small apartment buildings, with private or shared open space. This district is appropriate for providing moderate levels of density at strategic locations close to transit corridors.

2. **Zones.**

Zones	Context
Residential Limited 1 (RL1)	Suburban
Residential Limited 2 (RL2)	Urban
Residential Limited 3 (RL3)	Center

3. **Allowed Building Types.**

Allowed Building Types	Eligible for Voluntary Attainable Housing Incentive
Single Family	No
Two Family	No
Townhouse	Yes
House Court	No
Townhouse Court	Yes
Plex House	Yes
Manor House	Yes
Multiplex	Yes
Low-rise Courtyard Flats	Yes
Low-rise Flats (RL3 only)	Yes

Note 1: Detached Accessory Dwelling Units allowed with Single Family Building Types with conditions from Section 17.16.30.G, except for lot area, height, and setbacks, which are regulated by this chapter.

Note 2: Not-owner occupied Short Term Rentals are prohibited. Owner-occupied Short Term Rentals allowed with Single Family Building Type only per Section 6.28.30.

Note 3: Non-residential uses are permitted per Table 17.08.030 and are subject the bulk standards for R6 in Table 17.12.020B.

4. **Lot.**

Lot Size		RL1	RL2	RL3
Area		5,000 sf min.	5,000 sf min.	5,000 sf min.
Width	A	50' min.	40' min.	40' min.
Depth	B	90' min.	90' min.	90' min.
Minimum lot area, lot width, and lot depth requirements shall be waived if in compliance with Section 17.40.670 and one of the following conditions are met: • The site has access to a side street or improved alley. • The width of the primary structure's main body is at least 18 feet wide, and the highest roofline of the primary structure does not exceed a ratio of 1.0 horizontal to 1.5 vertical.				

5. **Building Placement.**

Setback		RL1	RL2	RL3
Front (Build-To Zone)	C	10' min.; 25' max.	10' min.; 25' max.	5' min.; 15' max.
Side Street (Build-To Zone)	D	10' min.; 25' max.	10' min.; 20' max.	5' min.; 15' max.
Side	E	5' min.	5' min.	5' min.
Rear				
Main Building	F	10' min.	10' min.	10' min.
Accessory Structure(s)	G	5' min.	5' min.	5' min.
Setbacks should align with the contextual setback (see Section 17.12.030.c(3). If the contextual setback is greater than the max setback for the district, then the district max shall apply.				
Facade Zone				
Main building shall define required % of the linear length of the Front Build-To Zone		50% min.		
Main building shall define required % of the linear length of the Side Street Build-To Zone		30% min.		
Encroachments into Setbacks				
Private Frontage Types may encroach into front and side street setbacks; and shall not be located in side or rear setbacks.				
Architectural features may encroach up to 5 feet into building setbacks. Architectural features cannot cross property lines.				
Fences, freestanding landscape walls, shrubs and landscaping may encroach up to 3 feet into front or side street setbacks; and are allowed within side and rear setbacks.				
Stormwater features may encroach into setbacks.				
Encroachments are not allowed within utility easement area, ROW, alley, or across a property line.				
Landscape Buffer				
See Table 17.24.230 for landscape buffer yard requirements.				
No landscape buffer yard is required between properties zoned RN and RL.				

Figure: 17.38.010.B(1). For A, B, C, D, E, F, and G see lettered sections in 17.38.010.B Table 4 and Table 5 for minimum and maximum requirements.

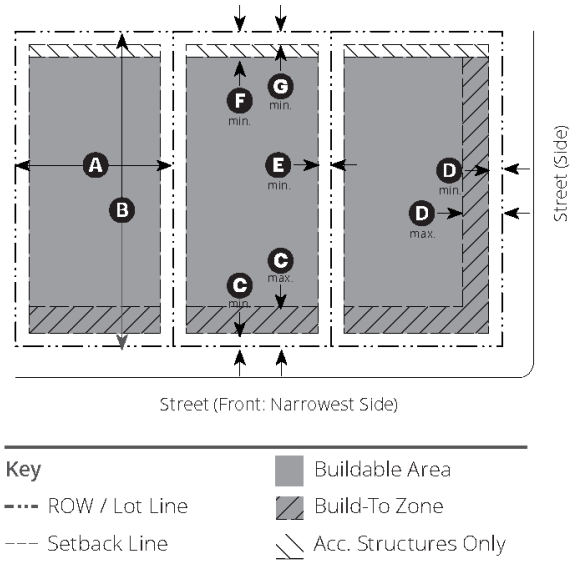
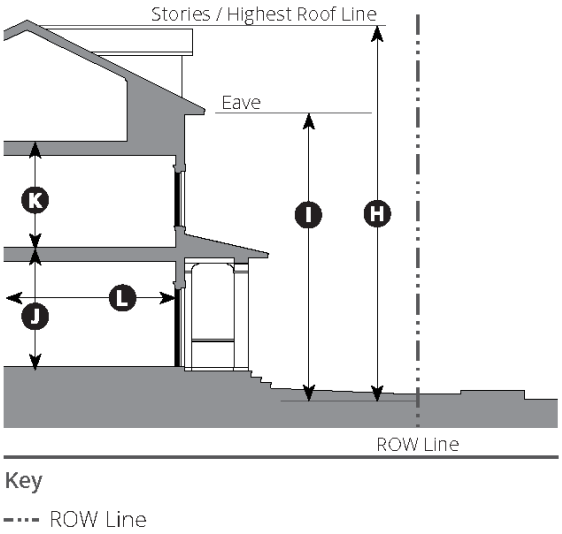


Figure: 17.38.010.B(2). For H, I, J, K, and L, see lettered sections in 17.38.010.B Table 6 for minimum and maximum requirements.



6. **Building Form.**

Height		**RL1**	**RL2**	**RL3**
Main Building				
Stories		2.5 max.	3 max.	4 max.
See Section 17.38.020 for additional height standards. Building type standards may further limit height. Height shall be measured from the average grade plane post-development.				
Highest Roof Line (H)	H	Maximums are set by building type.		
Highest Eave (I)	I			
Accessory Structure(s)				
Stories		2 max.	2 max.	2 max.
Highest Roof Line		30' max.	30' max.	30' max.
Highest Eave		24' max.	24' max.	24' max.
Floor-to-Floor		**RL1**	**RL2**	**RL3**
Ground Floor	J	9' min.	9' min.	9' min.
Upper Floors	K	8' min.	8' min.	8' min.
Ground Floor Residential or Active Space		**RL1**	**RL2**	**RL3**
Depth of active ground floor use along front and side street façade	L	10' min.	10' min.	10' min.
Coverage		**RL1**	**RL2**	**RL3**
Building Coverage		0.6 max.	0.6 max.	0.6 max.
See Section 17.28 for Environmental Performance Standards.				

7. **Parking Location.**

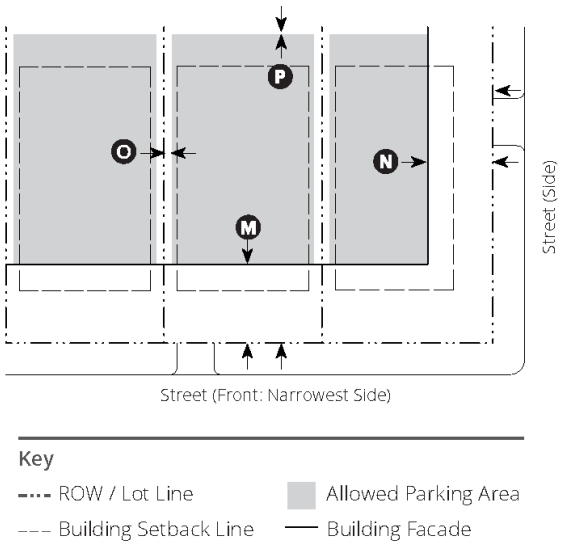
Setback		RL1	RL2	RL3
Front	M	10' behind facade	10' behind facade	10' behind facade
Side Street	N	10' behind facade	10' behind facade	10' behind facade
Side	O	3' min.	3' min.	3' min.
Rear	P	3' min.	3' min.	3' min.
Dimensional Standards				
15 feet maximum width for driveway curb cuts; unless required to be wider by the fire department.				
Driveway curb cuts along an alley may be greater than 12 feet in width.				
Parking shall meet the dimensional standards set forth in Section 17.20.060 of the Metropolitan Code.				
Parking lot perimeter screening and interior planting requirements per Sections 17.24.140 and 17.24.160.				

8. **Voluntary Attainable Housing Incentive (RL).** Buildings that comply with the requirements of the voluntary housing incentive program, as approved by Ordinance No. BL2025-1008, including any amendments, and the attainable housing requirements of Table 17.38.010.B-1 are eligible for incentives listed in Table 17.38.010.B-1. All units must be built and maintained to uniform standards in design, construction, and operations. Income-qualified units must be comparable to unrestricted units. All other District and Building Type standards apply.

Table 17.38.010.B-1

(a) Attainable Housing Requirements			
		Option 1	Option 2
Set-aside	Percentage of units within the building	10%	5%
Income qualification	Maximum % of AMI of residents	80%	60%
(b) Building Form and Parking Incentives			
Height	Additional stories	2 max.	
Units	No maximum unit count		
Parking	No parking required for income-qualified units		

Figure: 17.38.010.B(3). For M, N, O, and P, see lettered sections in 17.38.010.B Table 7 for requirements.



(Amdt. C to Ord. BL2025-1005 § 1(Exh. F), 2025; Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.010.C Administration.

1. **Design sites.** Multiple building types may be accommodated on a single parcel with a showing that each building can accommodate a lot that meets the requirements of the zoning district. See Table 17.38.010.C-1. The planning department may require subdivision for large or complex sites where right of way or public utility infrastructure is necessary for the public welfare.

Application for a design site shall be made with the Planning Department before submitting a final site plan to the Codes Department. Such application shall include a plan showing building, lot, and open space layouts, any public dedications and reservations as required by the Major and Collector Street Plan, and the provisions of the base zoning requirements requested to be modified.

2. **Dedications.** When a right-of-way dedication is required for an existing lot or parcel along an existing street, the minimum lot area shall be considered to be the area prior to the dedication. Sidewalks shall be constructed to the standard of the Major and Collector Street Plan or, if on a local street, to local street standards.

3. **Modifications.** Based on site-specific issues, modifications to the standards of 17.38.010 or 17.38.020 may be necessary. Any standard may be modified other than lot size, unit count, total building coverage, and land uses, insofar as the intent of the standard is being met; the modification results in better urban design for the neighborhood as a whole; and the modification does not impede or burden existing or future development of adjacent properties. Planning commission or planning department staff may approve modifications as follows:

A. The planning department staff may approve minor modifications, those containing deviations of 25 percent or less of a numerical standard or locational or access requirements in order to accommodate other life, health and safety requirements or to retain existing structures.

B. Major modifications, deviations of more than 25 percent, will be considered by the planning commission.

C. Application for a modification to the standards shall be made with the Planning Department before submitting a final site plan to the Codes Department. Such application shall include a plan showing building, lot, and open space layouts, any public dedications and reservations as required by the Major and Collector Street Plan, and the provisions of the base zoning requirements requested to be modified.

4. **Variances.** The zoning administrator shall include the recommendation of the planning department with any request for variance.

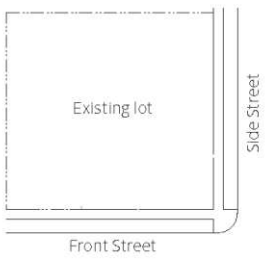
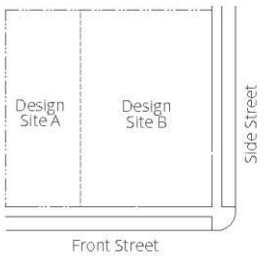
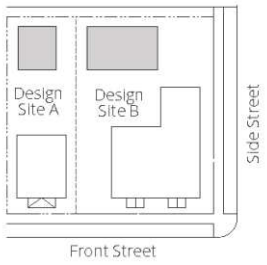
5. **Setbacks for Irregular Lots.** Wherever a lot is of such irregular shape that the setback provisions cannot be readily applied, the zoning administrator shall interpret the application of the setback provisions.

6. **Encroachment into Setbacks.**

A. Other permitted setback encroachments per Sections 17.12.040 and 17.38.030.

B. The zoning administrator may allow necessary adjustments to the build-to zone when existing utilities or utility easements are within the build-to zone and unusual circumstances require that the utilities cannot be relocated or easements reduced. Upon allowing an adjustment to the build-to zone, the zoning administrator may also allow adjustments to the rear setback and landscape buffer yard as authorized by Table 17.24.230, to provide for a necessary building area. The zoning administrator may allow necessary adjustments to the build-to zone, rear setback and landscape buffer yard based on the nature of the existing and future land uses and site conditions in the general vicinity after receiving a written recommendation from the planning department and any relevant department or agency.

Table 17.38.010.C-1: Example of Multiple Buildings on an Existing Lot

Step 1: Determine Applicability	
Multiple buildings are allowed on an existing lot only in the Residential Neighborhood (RN) and Residential Limited (RL) zoning districts. See Zoning Map to identify if applicable zoning districts apply to the development site.	
Step 2: Apply Design Sites	
When siting multiple buildings on an existing lot, each existing lot shall be divided into hypothetical lots, or design sites, that meet the standards of the applicable zone district. Each design site is required to front onto the adjacent street. Where there are two adjacent streets, the design site(s) may front on either in compliance with the standards. Select only one primary building type for each design site from the allowed building types for the zoning district.	
Step 3: Apply Building Types	
Apply a building type on each design site in compliance with the required setbacks and other standards of the Residential Neighborhood (RN) or Residential Limited (RL) zoning district, and applicable building type standards. Select and apply building frontage type(s) to each building/ unit entry.	
Key Parcel Line — Design Site Line Principal Building — Accessory Building	

(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.A Purpose.

This Section sets forth standards for the development of individual design-based building types to achieve the intended physical character of each zone and provide for housing opportunities within neighborhoods. (Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.B Building Types.

1. Each lot shall have only one principal building type, except as follows:

A. The House Court and Townhouse Court may allow multiple units per Subsection 17.38.020.H (House Court) and Subsection 17.38.020.I (Townhouse Court).

B. More than one building type is allowed on a lot that identifies multiple design sites that meet the standards of the underlying zoning district and this Section. See Table 17.38.010.C-1 (Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.C Interpreting Standards.

1. When standards of the underlying zoning district and building type conflict, the most restrictive standard controls. If an attainability incentive is sought, the bonus is applied to the most restrictive standard.

2. Width and depth standards do not specify an orientation to the lot or street. (Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.D Definitions.

Architectural features: An exterior building element intended to provide ornamentation to the building massing, including, but not limited to, eaves, cornices, bay windows, window and door surrounds, chimneys, light fixtures, and balconies.

Lot: For the purposes of this section, lot includes lots as defined in Section 17.04.060, as well as design sites, as illustrated in Table 17.38.010.C-1.

Main Body: The primary volume or massing of a principal building, typically excluding projections like architectural features, attached garages, building frontage types, or secondary wings.

Secondary Wing: A structure that extends at least five feet from and is secondary to the main body of a principal building.

Townhouse: A small-to-large-sized, typically attached, building with a rear yard comprising of at least three townhouses placed side-by-side. Each townhouse consists of one unit, unless otherwise noted. This type is typically located within moderate-to-high intensity neighborhoods, or on or near a neighborhood's main street.

Townhouse, Lot: An individual parcel of land designated for a single townhouse dwelling unit within a run of attached units. Each lot typically includes the dwelling unit, private yard or open space (if applicable), and may share one or more side lot lines with adjoining townhouse lots through common walls.

Townhouse, Run: A series of individual, consecutive townhouses attached by a shared vertical wall, the number of which is determined by the zone. (Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.E Overview.

Table 17.38.020.E-1 (Building Types Overview) provides an overview of the allowed building types.

Table 17.38.020.E-1: Building Types Overview

Building Type	
	Single Family 17.38.020.F. A building consisting of one unit within a single-building, scaled to fit within lower-intensity neighborhoods. A detached accessory dwelling may be allowed.
	Two Family 17.38.020.F. A building consisting of two units within a single-building massing. This type has the appearance of a single-family home and is scaled to fit within lower-intensity neighborhoods.
	Townhouse 17.38.020.G. A small-to-large-sized, typically an attached building with a rear yard that consists of at least 3 Townhouses placed side-by-side. Each Townhouse generally consists of 1 unit. This type is typically located within moderate-to-high intensity neighborhoods, or on or near a neighborhood main street.
	House Court 17.38.020.H. A group of detached buildings arranged to define a shared court that is typically perpendicular to the street. The shared court is common open space and takes the place of a private rear yard. This type is scaled to fit within low-to-moderate-intensity neighborhoods and in non-residential contexts.
	Townhouse Court 17.38.020.I. A group of attached buildings arranged to define a shared court that is typically perpendicular to the street. The shared court is common open space and takes the place of a private rear yard. This type is scaled to fit within moderate-intensity neighborhoods and in non-residential contexts.

Building Type	
	Plex House 17.38.020.J. A detached building that consists of 3 to 6 side-by-side and/or stacked units, typically with one shared entry at the front and/or individual entries along the front or side. This type has the appearance of a single-family house in a single cohesive building form and is scaled to fit into low- to moderate-intensity neighborhoods.
	Manor House 17.38.020.K. A detached building that consists of 6 to 10 side-by-side and/or stacked units, typically with one shared entry and sometimes secondary individual entries at the front or side. This type features a single cohesive building form and is scaled to fit within moderate-intensity neighborhoods or as a small portion of lower-intensity neighborhoods.
	Multiplex 17.38.020.L. A detached building that consists of 10 to 25 side-by-side and/or stacked units, typically with one shared entry and sometimes secondary individual entries at the front or side. This type is scaled to fit within moderate-intensity neighborhoods and/or to transition between low-intensity neighborhoods to corridors.
	Low-rise Courtyard Flats 17.38.020.M. A building that consists of 10 to 25 side-by-side and/ or stacked units, accessed from one or more shared courtyards. The shared court is common open space and takes the place of a rear yard. Shared entries and/or individual entries are accessed off the court or front street. This type is scaled to fit within moderate-intensity neighborhoods and/or to transition between low-intensity neighborhoods to corridors.
	Low-rise Flats 17.38.020.N. A building that consists of stacked units. The building may be attached or detached from adjacent buildings. This type is intended to provide residential uses or a vertical mix of ground floor nonresidential and upper floor residential uses. This type is typically used to transition between moderate-intensity neighborhoods to corridors, or along corridors and in centers.

(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.F Single Family/Two Family.

A Two Family Side-by-Side with separate entrances.

A Single Family Home

A Two Family Stacked.

General Note: Photos on this page are illustrative, not regulatory.

1. **Description.**

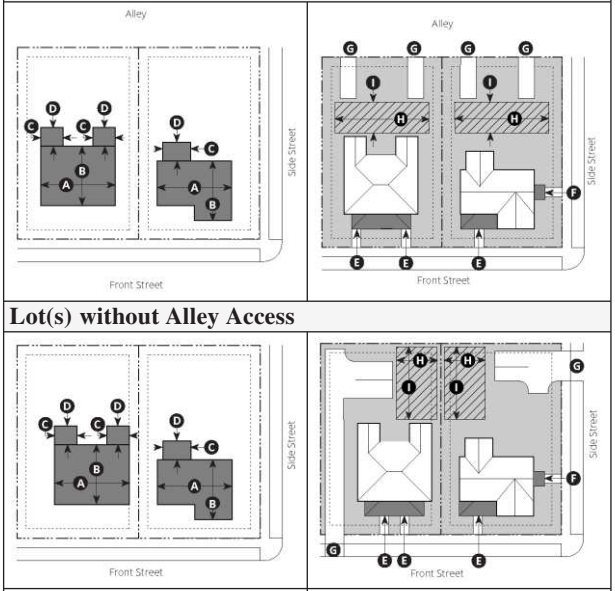
Single Family. A building consisting of one unit within a single-building, scaled to fit within lower-intensity neighborhoods. A detached accessory dwelling may be allowed.

Two Family. A building consisting of two units within a single-building massing. This type has the appearance of a medium-to-large single-family home and is scaled to fit within lower-intensity neighborhoods.

Figure 17.38.020.F(1). For A, B, C, and D see lettered sections in 17.38.020.F Table 3.

Figure 17.38.020.F(2). For E and F see lettered sections in 17.38.020.F Table 5. For G, see lettered section in 17.38.020.F Table 6. For H and I, see lettered section in 17.38.020.F Table 7.

Lot(s) with Alley Access



Lot(s) without Alley Access

2. **Number of Units.**

Units per Building	2 max.
Buildings per Lot	1 max.

3. **Building Size and Massing.**

Height			
Main Body	**RN1/RL1**	**RN2/RL2/RL3**	
Stories	2 stories max.	2.5 stories max.	
Height to Highest Roof Line	30' max.	35' max.	
Height to Highest Eave	24' max.	28' max.	
Secondary Wing(s)			
Stories	0.5 stories less than primary building		
Building Footprint			
Main Body			
Width	48' max.	48' max.	A
Depth	40' max.	40' max.	B
Secondary Wing(s)			
Width	15' max.	15' max.	C
Depth	25' max.	25' max.	D
Each side of a building may have a maximum of one secondary wing and a maximum of two secondary wings along the rear.			

4. **Allowed Frontage Types.**

Porch Projecting	17.38.030.D
Porch Engaged	17.38.030.E
Dooryard	17.38.030.F
Stoop	17.38.030.G

5. **Pedestrian Access.**

Principal Pedestrian Entrance		
Interior Lot	Front street	E
Corner Lot	Units on a corner may enter from the side street	F

6. **Vehicle Access and Parking.**

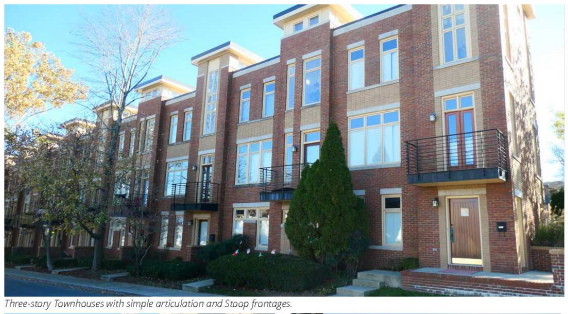
Access	G
Maximum of 1 driveway curb cut every 75 feet of street frontage.	
If alley is present, parking shall only be accessed from alley.	
If side street is present but no alley, parking shall be accessed only from side street.	

7. **Common Open Space.**

Width	15' min.	H
Depth	15' min.	I
Common Open Space requirement may be substituted with two 8' × 15' private open spaces.		
Required front and side street setbacks shall not be included in the minimum open space area calculation.		
Driveways and parking are not allowed within a required open space.		
Required open space shall be located behind the main body of the building.		

(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.G Townhouse.



Three-story Townhouses with simple articulation and Stoop frontages.

Townhouses with minimal separations between them.

Townhouses with a Stoop frontage type.

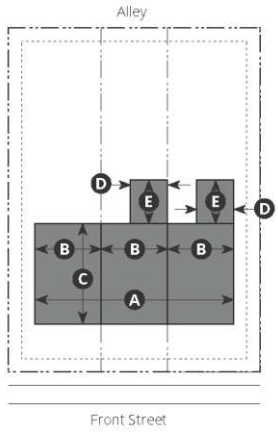
General Note: Photos on this page are illustrative, not regulatory.

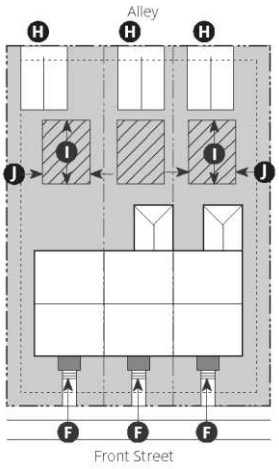
1. **Description.** A small-to-large-sized, typically an attached, building with a rear yard that consists of at least three Townhouses placed side-by-side. Each Townhouse generally consists of one unit. This type is typically located within moderate-to-high intensity neighborhoods, or on or near a neighborhood main street.

Figure 17.38.020.G(1). For A, B, C, D and E see lettered sections in 17.38.020.G Table 3.

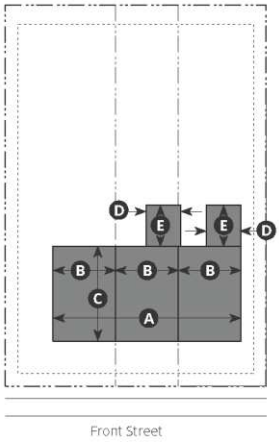
Figure 17.38.020.G(2). For F see lettered sections in 17.38.020.G Table 5. For H, see lettered section in 17.38.020.G Table 6. For I and J, see lettered section in 17.38.020.G Table 7.

Lot(s) with Alley Access





Lot(s) without Alley Access



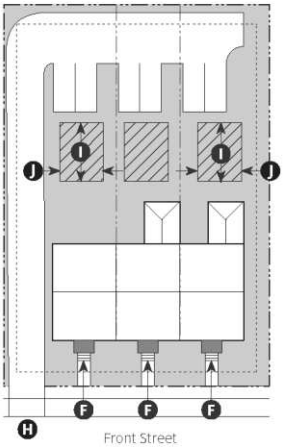
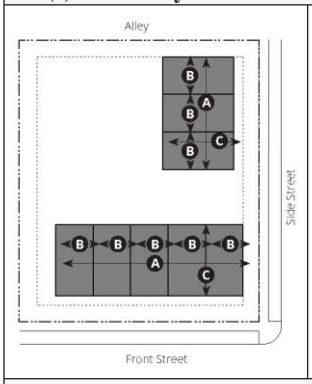
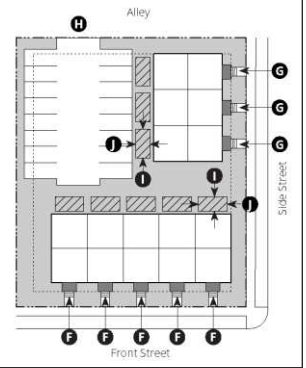


Figure 17.38.020.G(3).
For A, B, C, see lettered sections in 17.38.020.G Table 3.

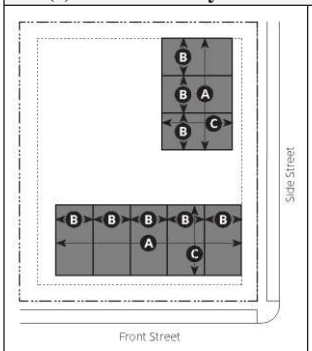
Figure 17.38.020.G(4).
For F and G see lettered sections in 17.38.020.G Table 5. For H, see lettered section in 17.38.020.G Table 6. For I and J, see lettered section in 17.38.020.G Table 7.

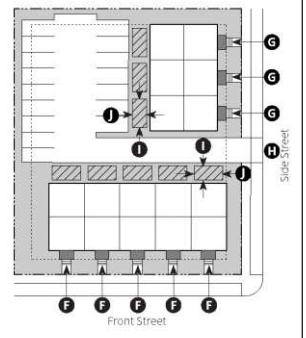
Lot(s) with Alley Access

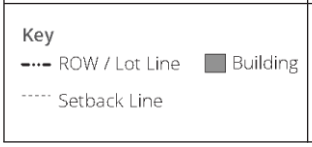


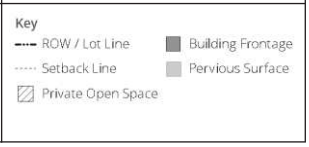


Lot(s) without Alley Access









2. Number of Units.

	RN1/RL1	RN2/RL2/RL3
Units per Townhouse	1 max.*	1 max.*
Townhouses in a Run	3 min.; 5 max.	3 min.; 8 max.
*One townhouse per run may consist of up to 3 stacked units.		

3. Building Size and Massing.

Height			
Main Body	**RN1/RL1**	**RN2/RL2/RL3**	
Stories	2.5 stories max.	3 stories max.	
Height to Highest Roof Line	35' max.	45' max.	
Height to Highest Eave	28' max.	35' max.	
Secondary Wing(s)			
Stories	0.5 stories less than primary building		
Building Footprint			
Main Body	**RN1/RL1**	**RN2/RL2/RL3**	
Maximum Width per Run	90' max.	160' max.	A
Townhouse Width	18' min.; 30' max.		B
Townhouse Depth	40' max.	40' max.	C
Secondary Wing(s)			
Width	75% of main body width max.		D
Depth	25' max.		E
Sides and rear of a building may have a maximum of one secondary wing. Secondary wings may not be used to attach buildings or units.			

4. Allowed Frontage Types.

Porch Projecting	17.38.030.D
Porch Engaged	17.38.030.E
Dooryard	17.38.030.F
Stoop	17.38.030.G

5. Pedestrian Access.

Principal Pedestrian Entrance		
Interior Lot	Front street	F
Corner Lot	Units facing a side street must enter from the side street	G
Ground floor units shall have an individual entry facing a street.		

6. **Vehicle Access and Parking.**

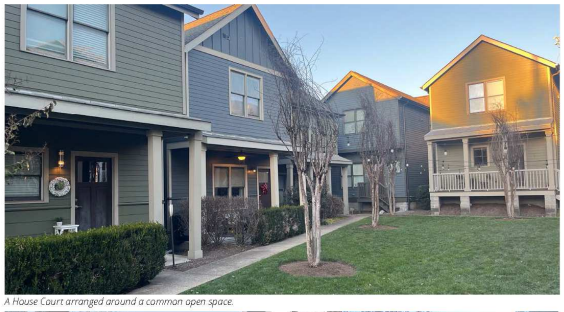
Access	H
Maximum of 1 driveway curb cut every 75 feet of street frontage.	
If alley is present, parking shall only be accessed from alley.	
If side street is present but no alley, parking shall be accessed only from side street.	

7. **Private Open Space.**

Width	8' min.	I
Depth	8' min.	J
Required front and side street setbacks shall not be included in the minimum private open space area calculation.		
Driveways and parking are not allowed within a required private open space.		
Required private open space shall be located behind the main body of each building.		

(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.H House Court.



A House Court arranged around a common open space.

A modern style House Court with a usable green space.

A two-story House Court along a set of connected green spaces.

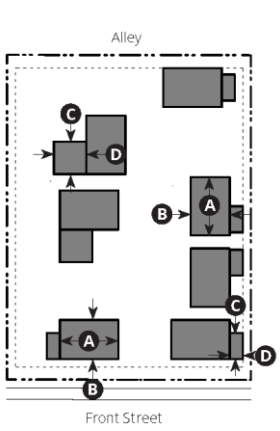
General Note: Photos on this page are illustrative, not regulatory.

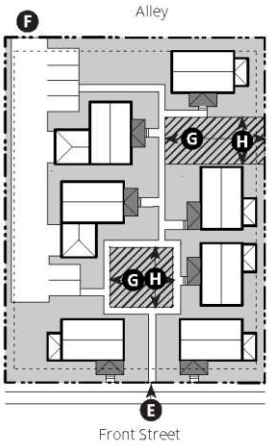
1. **Description.** A group of detached buildings arranged to define a shared court that is typically perpendicular to the street. The shared court is common open space and takes the place of a private rear yard. This type is scaled to fit within low-to-moderate-intensity neighborhoods and in non-residential contexts.

Figure 17.38.020.H(1). For A, B, C, and D, see lettered sections in 17.38.020.H Table 3.

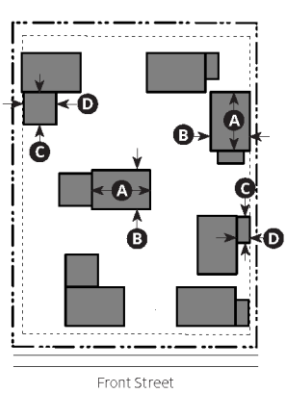
Figure 17.38.020.H(2). For E, see lettered section in 17.38.020.H Table 5. For F, see lettered section in 17.38.020.H Table 6. For G and H, see lettered sections in 17.38.020.H Table 7.

Lot(s) with Alley Access





Lot(s) without Alley Access



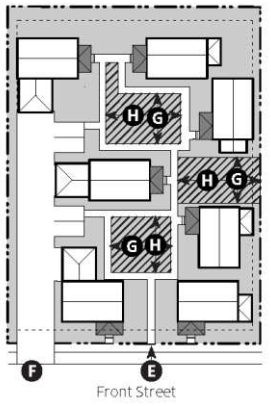
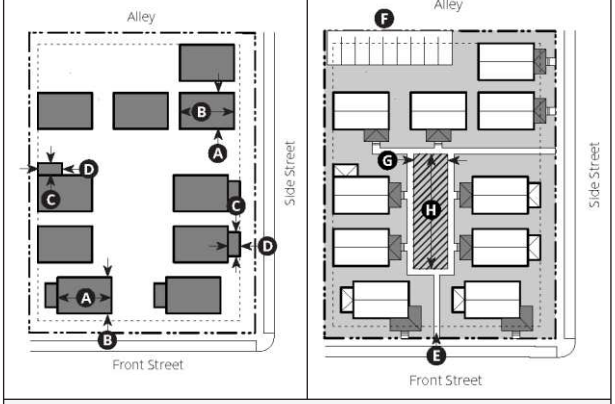


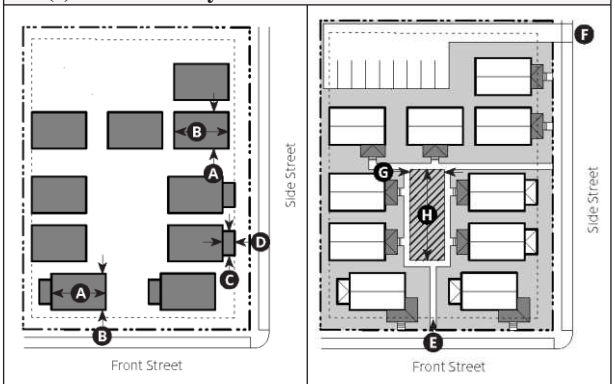
Figure 17.38.020.H(3). For A, B, C, and D, see lettered sections in 17.38.020.H Table 3.

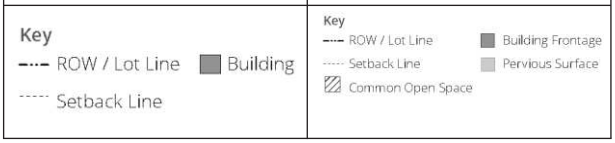
Figure 17.38.020.H(4). For E, see lettered section in 17.38.020.H Table 5. For F, see lettered section in 17.38.020.H Table 6. For G and H, see lettered sections in 17.38.020.H Table 7.

Lot(s) with Alley Access



Lot(s) without Alley Access





2. **Number of Units.**

Units per Building	1 max.*
Buildings per Lot	3 min.; 12 max.
*Up to one building in the House Court may have 2 units.	

3. **Building Size and Massing.**

Height		
Main Body	**RN1/RL1**	**RN2/RL2/RL3**
Stories	2 stories max.	2.5 stories max.
Height to Highest Roof Line	30' max.	35' max.
Height to Highest Eave	24' max.	28' max.
Secondary Wing(s)		
Stories	0.5 stories less than primary building	
Building Footprint		
Main Body		
Width	32' max.	A
Depth	24' max.	B
Secondary Wing(s)		
Width	20' max.	C
Depth	25' max.	D
Each building may have a maximum of one secondary wing along the side or rear.		

4. **Allowed Frontage Types.**

Porch Projecting	17.38.030.D
Porch Engaged	17.38.030.E
Dooryard	17.38.030.F
Stoop	17.38.030.G

5. **Pedestrian Access.**

Common open space shall be accessible from front street	E
Units on corner or along a side street may enter from either the common open space or side street.	
Units interior to the lot shall enter off the common open space or pedestrian passage.	
Units with frontage on a street shall provide an entry from that street.	
Pedestrian passages shall link all buildings to the public ROW, common open space, and parking areas.	
Pedestrian Passage Width	
For the first 30' from the front street	8' min.
After the first 30' in length	12' min.
Pedestrian passages shall include a 4' minimum width walkway to units and may include low landscaping and stormwater detention.	

6. **Vehicle Access and Parking.**

Access	Ⓕ
Maximum of 1 driveway curb cut every 75 feet of street frontage.	
If alley is present, parking shall only be accessed from alley.	
If side street is present but no alley, parking shall be accessed only from side street.	
Spaces may be individually accessible by the units and/or a common parking area located at the rear side of lot.	
Shared driveways allowed per access easements.	

7. **Common Open Space.**

Width	20' min.	Ⓖ
Depth	50' min.	Ⓗ
All common open spaces provided shall meet the minimum required dimensions.		
Required front and side street setbacks shall not be included in the minimum common open space area calculation.		
Driveways and parking are not allowed within a required common open space.		
50 percent of common open space may be used for storm-water management.		

(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.I Townhouse Court.

A Townhouse Court along a set of connected green spaces.

Townhouse Court along a set of connected green spaces.

Townhouse Court along a pedestrian passage.

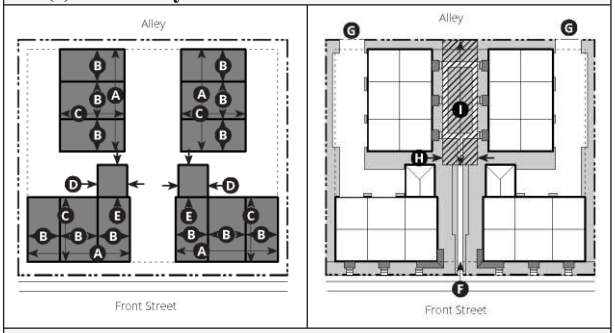
General Note: Photos on this page are illustrative, not regulatory.

1. **Description.** A group of attached buildings arranged to define a shared court that is typically perpendicular to the street. The shared court is common open space and takes the place of a private rear yard. This type is scaled to fit within moderate-intensity neighborhoods and in non-residential contexts.

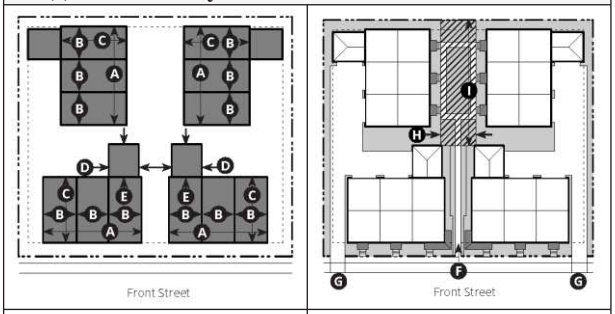
Figure 17.38.020.I(1). For A, B, C, D and E, see lettered sections in 17.38.020.I Table 3.

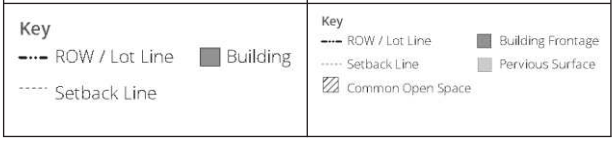
Figure 17.38.020.I(2). For F, see lettered section in 17.38.020.I Table 5. For G, see lettered section in 17.38.020.I Table 6. For H and I, see lettered sections in 17.38.020.I Table 7.

Lot(s) with Alley Access



Lot(s) without Alley Access





2. **Number of Units.**

Units per Townhouse	1 max.*
Townhouses per Lot	3 min.; 12 max.
Townhouses in a Run	5 max.
*Up to one building in a run may have three stacked units.	

3. **Building Size and Massing.**

Height			
Main Body	**RN1/RL1**	**RN2/RL2/RL3**	
Stories	2.5 stories max.	3 stories max.	
Height to Highest Roof Line	30' max.	35' max.	
Height to Highest Eave	24' max.	28' max.	
Secondary Wing(s)			
Stories	0.5 stories less than primary building		
Building Footprint			
Main Body	**RN1/RL1**	**RN2/RL2/RL3**	
Maximum Width per Run	80' max.	160' max.	A
Townhouse Width	18' min.	30' max.	B
Townhouse Depth	40' max.	40' max.	C
Secondary Wing(s)			
Width	75% of main body width max.		D
Depth	25' max.		E
Sides and rear of a building may have a maximum of one secondary wing. Secondary wings may not be used to attach buildings or units.			

4. **Allowed Frontage Types.**

Porch Projecting	17.38.030.D
Porch Engaged	17.38.030.E
Dooryard	17.38.030.F
Stoop	17.38.030.G
Terrace	17.38.030.H
Terrace frontage only allowed when used to access multiple unit entrances on sloped sites.	

5. **Pedestrian Access.**

Common open space shall be accessible from front street		F
Units at the front of the lot shall provide an entry from front street.		
Units interior to the lot, shall enter off the common open space.		
The principal pedestrian entrance into each unit shall not be through a garage.		
Units on a corner may enter from the side street.		
Pedestrian passages shall link all buildings to the public ROW, Common Open Space, and parking areas.		
Pedestrian Passage Width		
For the first 30' from the front street	8' min. clear	
After the first 30' in length	12' min. clear	
Pedestrian passages shall include a 4' minimum width walkway to units and may include low landscaping and stormwater detention.		

6. **Vehicle Access and Parking.**

Access	G
Maximum of 1 driveway curb cut every 75 feet of street frontage.	
If alley is present, parking shall only be accessed from alley.	
If side street is present but no alley, parking shall be accessed only from side street.	

7. **Common Open Space.**

Width	20' min.	H
Depth	75' min.	I
Required front and side street setbacks shall not be included in the minimum common open space area calculation.		
Driveways and parking are not allowed within a required common open space.		
50 percent of common open space may be used for stormwater management.		

(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.J Plex House.

A Plex House uses a large projecting porch that all units may share.

A Plex House with a raised porch entry.

A Plex House with single ground floor entrance.

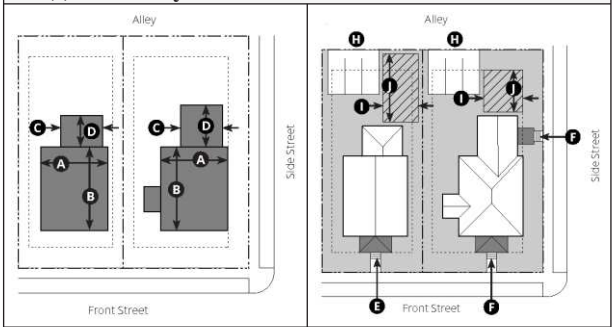
General Note: Photos on this page are illustrative, not regulatory.

1. **Description.** A detached building that consists of three to six side-by-side and/or stacked units, typically with one shared entry at the front and/or individual entries along the front or side. This type has the appearance of a single-family house in a single cohesive building form and is scaled to fit into low- to moderate-intensity neighborhoods.

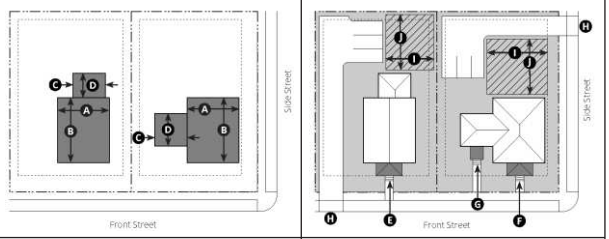
Figure 17.38.020.J(1). For A, B, C, and D, see lettered sections in 17.38.020.J Table 3.

Figure 17.38.020.J(2). For E, F, and G, see lettered section in 17.38.020.J Table 5. For H, see lettered section in 17.38.020.J Table 6. For I and J, see lettered sections in 17.38.020.J Table 7.

Lot(s) with Alley Access



Lot(s) without Alley Access



2. **Number of Units.**

Units per Building	3 min.; 6 max.
Buildings per Lot	1 max.

3. **Building Size and Massing.**

Height			
Main Body	**RN1/RL1**	**RN2/RL2/RL3**	
Stories	2 stories max.	2.5 stories max.	
Height to Highest Roof Line	30' max.	35' max.	
Height to Highest Eave	24' max.	28' max.	
Secondary Wing(s)			
Stories	0.5 stories less than primary building		
Building Footprint			
Main Body			
Width	45' max.	45' max.	A
Depth	45' max.	55' max.	B
Secondary Wing(s)			
Width	20' max.		C
Depth	30' max.		D
A building may have a maximum of one secondary wing on each of its sides and rear, or an additional 25' in depth.			

4. **Allowed Frontage Types.**

Porch Projecting	17.38.030.D
Porch Engaged	17.38.030.E
Dooryard	17.38.030.F
Stoop	17.38.030.G
Terrace	17.38.030.H
Terrace frontage only allowed when used to access multiple unit entrances on sloped sites.	

5. **Pedestrian Access.**

Principal Pedestrian Entrance		
Interior Lot	Front Street	E
Corner Lot	Units on a corner may enter from the side street	F
Each unit may have an individual entry.		G

6. **Vehicle Access and Parking.**

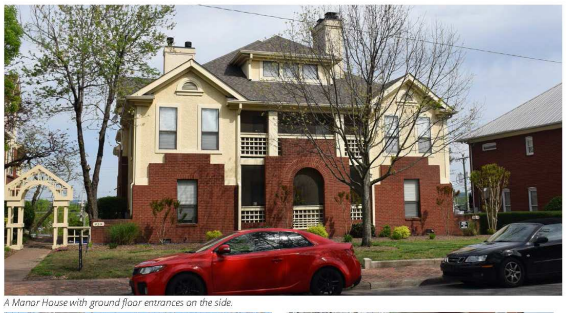
Access	H
Maximum of 1 driveway curb cut along street frontage.	
If alley is present, parking shall only be accessed from alley.	
If side street is present but no alley, parking shall be accessed only from side street.	

7. **Common Open Space.**

Width	24' min.	I
Depth	12' min.	J
Required front and side street setbacks shall not be included in the minimum common open space area calculation.		
Driveways and parking are not allowed within a required common open space.		
Required common open space shall be located behind the main body of the building.		
50 percent of common open space may be used for stormwater management.		

(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.K Manor House.



A Manor House with ground floor entrances on the side.

A Manor House with individual ground floor entrances.

A Manor House with four individual ground floor entrances.

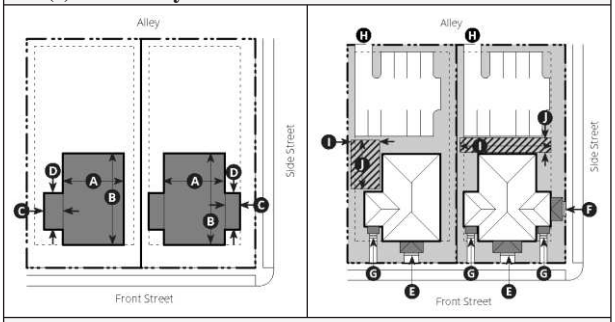
General Note: Photos on this page are illustrative, not regulatory.

1. **Description.** A detached building that consists of six to ten side-by-side and/or stacked units, typically with one shared entry and sometimes secondary individual entries at the front or side. This type features a single cohesive building form and is scaled to fit within moderate-intensity neighborhoods or as a small portion of lower-intensity neighborhoods.

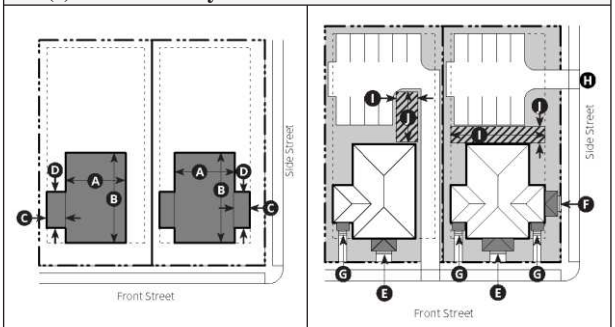
Figure 17.38.020.K(1). For A, B, C, and D, see lettered sections in 17.38.020.K Table 3.

Figure 17.38.020.K(2). For E, F, and G, see lettered section in 17.38.020.K Table 5. For H, see lettered section in 17.38.020.K Table 6. For I and J, see lettered sections in 17.38.020.K Table 7.

Lot(s) with Alley Access



Lot(s) without Alley Access



2. **Number of Units.**

Units per Building	6 min.; 10 max.
Buildings per Lot	1 max.

3. **Building Size and Massing.**

Height			
Main Body	**RL1**	**RN2/RL2/RL3**	
Stories	2.5 stories max.	3 stories max.	
Height to Highest Roof Line	35' max.	40' max.	
Height to Highest Eave	28' max.	35' max.	
Secondary Wing(s)			
Stories	0.5 stories less than primary building		
Building Footprint			
Main Body			
Width	48' max.		Ⓐ
Depth	70' max.		Ⓑ
Secondary Wing(s)			
Width	20' max.		Ⓒ
Depth	25' max.		Ⓓ
A building may have a maximum of one secondary wing on each of its sides and rear, or an additional 15' in depth.			

4. **Allowed Frontage Types.**

Porch Projecting	17.38.030.D
Porch Engaged	17.38.030.E
Dooryard	17.38.030.F
Stoop	17.38.030.G
Terrace	17.38.030.H
Terrace frontage only allowed when used to access multiple unit entrances on sloped sites.	

5. **Pedestrian Access.**

Principal Pedestrian Entrance		
Interior Lot	Front Street	Ⓔ
Corner Lot	Units on a corner may enter from the side street	Ⓕ
Each unit may have an individual entry.		Ⓖ

6. **Vehicle Access and Parking.**

Access	Ⓗ
Maximum of 1 driveway curb cut along street frontage.	
If alley is present, parking shall only be accessed from alley.	
If side street is present but no alley, parking shall be accessed only from side street.	

7. **Common Open Space.**

Width	24' min.	Ⓘ
Depth	12' min.	Ⓙ
Required front and side street setbacks shall not be included in the minimum common open space area calculation.		
Driveways and parking are not allowed within a required common open space.		
Required common open space shall be located behind the main body of the building.		
50 percent of common open space may be used for stormwater management.		

(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.L Multiplex.

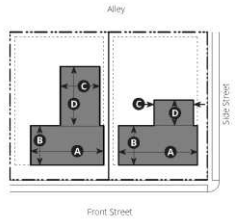
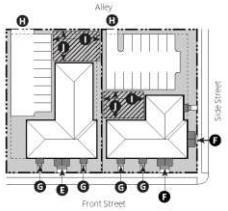
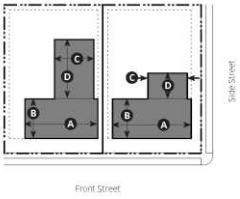
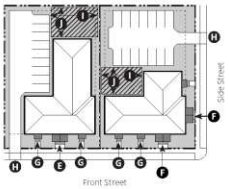
Three-story Multiplex with a single ground floor entrance.

Multiplex with a recessed stoop entry.

Three-story Multiplex with entries facing the front and side street.

General Note: Photos on this page are illustrative, not regulatory.

1. **Description.** A detached building that consists of ten to twenty-five side-by-side and/or stacked units, typically with one shared entry and sometimes secondary individual entries at the front or side. This type is scaled to fit within moderate-intensity neighborhoods and/or to transition between low-intensity neighborhoods to corridors.

Figure 17.38.020.L(1). For A, B, C, and D, see lettered sections in 17.38.020.L Table 3.	**Figure 17.38.020.L(2).** For E, F, and G, see lettered section in 17.38.020.L Table 5. For H, see lettered section in 17.38.020.L Table 6. For I and J, see lettered sections in 17.38.020.L Table 7.
Lot(s) with Alley Access	
	
Lot(s) without Alley Access	
	

2. **Number of Units.**

	RL1	RL2/RL3
Units per Building	10 min.; 20 max.	10 min.; 25 max.
Buildings per Lot	1 max.	

3. **Building Size and Massing.**

Height			
Main Body	**RL1**	**RL2/RL3**	
Stories	3 stories max.	4 stories max.	
Height to Highest Roof Line	45' max.	55' max.	
Height to Highest Eave	35' max.	45' max.	
Secondary Wing(s)			
Stories	3 stories max.	4 stories max.	
Upper Floor Stepback			
Applicable to parcels that share a side and/or rear property line with R and RS zoned land. Fourth floor within 30 feet of the shared side or rear property line shall stepback a minimum of 10 feet from the facade below.			
Building Footprint			
Main Body	**RL1**	**RL2/RL3**	
Width	80' max.	120' max.	A
Depth	40' max.	40' max.	B
Secondary Wing(s) Footprint			
Width	40' max.		C
Depth	60' max.		D
Sides and rear of a building may have a maximum of one secondary wing each.			

4. **Allowed Frontage Types.**

Porch Projecting	17.38.030.D
Porch Engaged	17.38.030.E
Dooryard	17.38.030.F
Stoop	17.38.030.G
Terrace	17.38.030.H
Terrace frontage only allowed when used to access multiple unit entrances on sloped sites.	

5. **Pedestrian Access.**

Principal Pedestrian Entrance		
Interior Lot	Front Street	E
Corner Lot	Units on a corner may enter from the side street	F
Each unit may have an individual entry.		G

6. **Vehicle Access and Parking.**

Access	H
Maximum of 1 driveway curb cut along street frontage.	
If alley is present, parking shall only be accessed from alley.	
If side street is present but no alley, parking shall be accessed only from side street.	

7. **Common Open Space.**

Width	24' min.	I
Depth	12' min.	J
Required front and side street setbacks shall not be included in the minimum common open space area calculation.		
Driveways and parking are not allowed within a required common open space.		
Required common open space shall be located behind the main body of the building.		
50 percent of common open space may be used for storm-water management.		

(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.M Low-rise Courtyard Flats.

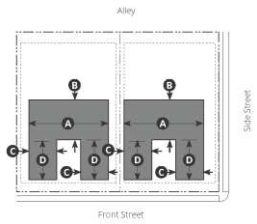
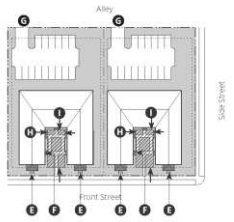
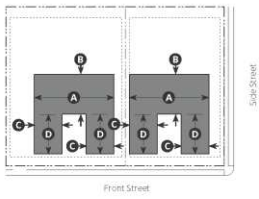
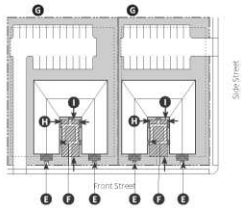
Three-story Courtyard Flats with individual ground floor entrances.

Three-story Courtyard Flats with individual ground floor entrances.

Three-story Courtyard Flats with Stoop frontages.

General Note: Photos on this page are illustrative, not regulatory.

1. **Description.** A building consists of ten to 25 side-by-side and/or stacked units, accessed from one or more shared courtyards. The shared court is common open space and takes the place of a rear yard. Shared entries and/or individual entries are accessed off the court or front street. This type is scaled to fit within moderate-intensity neighborhoods and/or to transition between low-intensity neighborhoods to corridors.

Figure 17.38.020.M(1). For A, B, C, and D, see lettered sections in 17.38.020.M Table 3.	**Figure 17.38.020.M(2).** For E and F, see lettered section in 17.38.020.M Table 5. For G, see lettered section in 17.38.020.M Table 6. For H and I, see lettered sections in 17.38.020.M Table 7.
Lot(s) with Alley Access	
	
Lot(s) without Alley Access	
	

2. **Number of Units.**

	RL1	RL2/RL3
Units per Building	20 units max.	25 units max.
Buildings per Lot	1 max.	

3. **Building Size and Massing.**

Height: RL1			
Main Body and Secondary Wings			
Stories	2.5 stories max.		
Height to Highest Roof Line	35' max.		
Height to Highest Eave	28' max.		
Height: RL2			
Main Body and Secondary Wings			
Stories	3 stories max.		
Height to Highest Roof Line	45' max.		
Height to Highest Eave	35' max.		
Height: RL3			
Main Body and Secondary Wings			
Stories	4 stories max.		
Height to Highest Roof Line	55' max.		
Height to Highest Eave	45' max.		
Upper Floor Stepback			
Applicable to parcels that share a side and/or rear property line with R and RS zoned land. Fourth floor within 30 feet of the shared side or rear property line shall stepback a minimum of 10 feet from the facade below.			
Building Footprint			
Main Body	**RL1**	**RL2/RL3**	
Width	100' max.	120' max.	A
Depth	40' max.	40' max.	B
Secondary Wing(s) Footprint			
Width	30' max.	30' max.	C
Depth	85' max.	105' max.	D
Front and rear of a building may have a maximum of two secondary wings each.			

4. **Allowed Frontage Types.**

Porch Projecting	17.38.030.D
Porch Engaged	17.38.030.E
Dooryard	17.38.030.F
Stoop	17.38.030.G
Terrace	17.38.030.H
Terrace frontage only allowed when used to access multiple unit entrances on sloped sites.	

5. **Pedestrian Access.**

Principal Pedestrian Entrance		E
Interior Lot	Front Street	
Corner Lot	Units on a corner may enter from the side street	
Each unit may have an individual entry.		F

6. **Vehicle Access and Parking.**

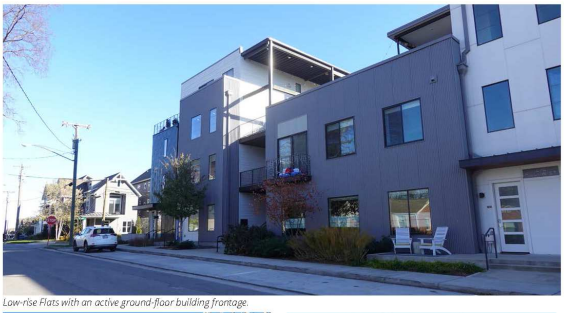
Access	G
Maximum of 1 driveway curb cut along street frontage.	
If alley is present, parking shall only be accessed from alley.	
If side street is present but no alley, parking shall be accessed only from side street.	

7. **Courtyard.**

Courtyard Width		H
Buildings up to 2 stories	25' min.	
Buildings more than 2 stories	35' min.	
Courtyard Depth		I
Buildings up to 2 stories	50' min.	
Buildings more than 2 stories	70' min.	
For determining size of courtyard, building height shall be measured at the highest story along courtyard.		
Courtyards shall open on a street or shall be connected to street with a pedestrian passage.		
Street facing facades over 90 feet in length shall be broken down with at least one courtyard along the street.		
Building shall define at least two walls of a courtyard.		
Side(s) of courtyard not defined by building may be defined by a 2'-6" to 6' tall wall, hedge, or fence with entry gate/ door, no greater than 36" in height.		
Shared courtyard(s) may be used for stormwater management if designed as integral site element (rain garden or bioswale) and does not visually detract from the frontage of each building facing the courtyard.		
Driveways and parking not allowed within a required courtyard.		

(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.020.N Low-rise Flats.



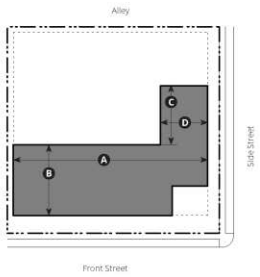
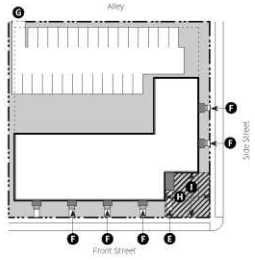
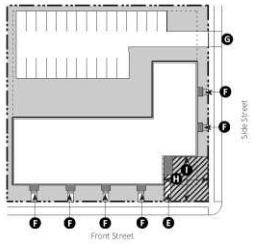
Low-rise Flats with an active ground-floor building frontage.

Low-rise Flats on a street corner.

Low-rise Flats on a street corner.

General Note: Photos on this page are illustrative, not regulatory.

1. **Description.** A building that consists of stacked units. The building may be attached or detached from adjacent buildings. This type is intended to provide residential uses or a vertical mix of ground floor nonresidential and upper floor residential uses. This type is typically used to transition between moderate-intensity neighborhoods to corridors, or along corridors and in centers.

Figure 17.38.020.N(1). For A, B, C, and D, see lettered sections in 17.38.020.N Table 3.	**Figure 17.38.020.N(2).** For E and F, see lettered section in 17.38.020.N Table 5. For G, see lettered section in 17.38.020.N Table 6. For H and I, see lettered sections in 17.38.020.N Table 7.
Lot(s) with Alley Access	
	
Lot(s) without Alley Access	
	

2. **Number of Units.**

Units per Building	**RL3**
Number of Units	40 max.
Buildings per Lot	1 max.

3. **Building Size and Massing.**

Height		
Main Body and Secondary Wings	**RL3**	
Stories	4 stories max.	
Height to Highest Roof Line	55' max.	
Height to Highest Eave	45' max.	
Upper Floor Stepback		
Applicable to parcels that share a side and/or rear property line with R and RS zoned land. Fourth floor within 30 feet of the shared side or rear property line shall stepback a minimum of 10 feet from the facade below.		
Building Footprint		
Main Body	**RL3**	
Width	180' max.	A
Depth	60' max.	B
Secondary Wing(s) Footprint		
Width	60' max.	C
Depth	60' max.	D
Rear of a building may have a maximum of one secondary wing.		

4. **Allowed Frontage Types.**

Porch Projecting	17.38.030.D
Porch Engaged	17.38.030.E
Dooryard	17.38.030.F
Stoop	17.38.030.G
Terrace	17.38.030.H
Terrace frontage only allowed when used to access multiple unit entrances on sloped sites.	

5. **Pedestrian Access.**

Principal Pedestrian Entrance		E
Interior Lot	Front Street	
Corner Lot	Units on a corner may enter from the side street	
Each unit may have an individual entry.		F

6. **Vehicle Access and Parking.**

Access	G
Maximum of 1 driveway curb cut along street frontage.	
If alley is present, parking shall only be accessed from alley.	
If side street is present but no alley, parking shall be accessed only from side street.	

7. **Common Open Space.**

Width	30' min.	H
Depth	30' min.	I
Common open space may be located in front of the building main body so long as it is fronted by the principal pedestrian entrance.		
Front, side street, and side setbacks may be included in common open space when the entire open space is treated as one contiguous entrance plaza.		
Driveways and parking are not allowed within a required common open space.		

(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.030.A Purpose.

This Section sets forth standards applicable to all frontages. Frontages are the components of a building that provide the transition and interface between the public realm (street and sidewalk) and the private realm (yard or building). (Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.030.B Frontage Types.

1. The names of the Frontage Types indicate their particular configuration or function and are not intended to limit uses within the associated building. For example, a porch may be used by non-residential uses as allowed by the zone.

2. Each building shall have at least one Frontage Type along each street frontage or along a civic space.

3. Frontage Types not listed in Item 4 (Allowed Frontage Types) of the building type are not allowed on that building type.

4. Each building may have multiple Frontage Types in compliance with the allowed types in Item 4 (Allowed Frontage Types) of each building type.

5. Each Frontage Type shall be located in compliance with the Building Placement standards of the zone.

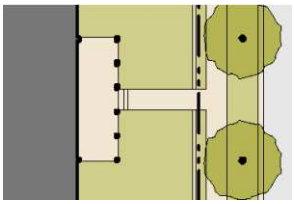
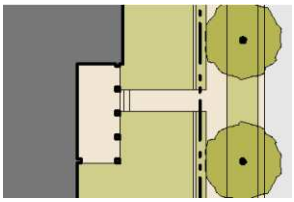
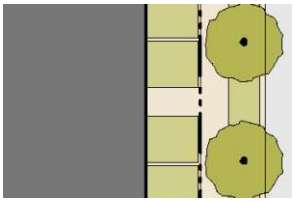
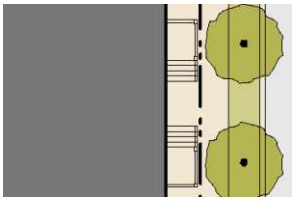
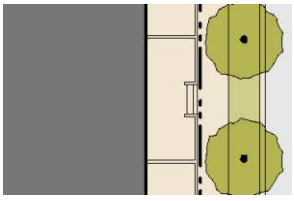
6. Frontage Types may encroach into front and side street setbacks; and shall not be located in side or rear setbacks per Encroachments standards of the zone.

7. Standards in this Section are stated for the front of a lot and are to be adjusted for side street facades in compliance with the setbacks of the zone. (Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.030.C Overview.

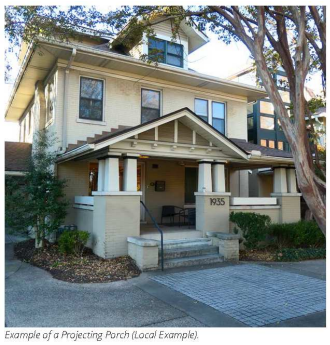
Table 17.38.030.C-1 (Frontage Types Overview) provides a summary of the allowed Frontage Types.

Table 17.38.030.C-1 Frontage Types Overview

Frontage Type	
	**Porch Projecting 17.38.030.D.** The main facade of the building is set back from the front lot line with a covered structure encroaching into the front setback. The resulting setback area can be defined by a fence or hedge to spatially maintain the edge of the street. The Porch may be one or two stories, is open on three sides, with all habitable space located behind the building setback line.
	**Porch Engaged 17.38.030.E.** A portion of the main facade of the building is set back from the front lot line to create an area for a covered structure that projects from the facade that is set back. The resulting yard may be defined by a fence or hedge to spatially maintain the edge of the street. The Porch may be one or two stories and typically has two adjacent sides that are engaged to the building, while the other two sides are open.
	**Dooryard 17.38.030.F.** The main facade of the building is set back from the front lot line, which is defined by a low wall, hedge, or other allowed screening, creating a small private area between the sidewalk and the facade. Each Dooryard is separated from adjacent Dooryards. The Dooryard may be raised or at grade.
	**Stoop 17.38.030.G.** The main facade of the building is near the front lot line with steps to an elevated entry. The Stoop is elevated above the sidewalk to provide privacy along the sidewalk-facing rooms. Stairs or ramps from the Stoop may lead directly to the sidewalk or may be parallel to the sidewalk.
	**Terrace 17.38.030.H.** The main facade is at or near the front lot line with steps leading to an elevated area providing public circulation along the facade. This type is used to provide outdoor areas along the sidewalk for housing or to accommodate an existing or intended grade change for non-residential uses.

(Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.030.D Porch Projecting.



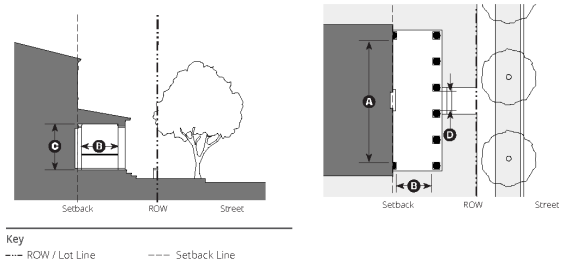
Example of a Projecting Porch (Local Example).

Example of a Projecting Porch (Local Example).

Example of a Projecting Porch.

General Note: Photos on this page are illustrative, not regulatory.

Figure 17.38.030.D(1). For A, B, and C, see lettered sections in 17.38.030.D Table 2. For D, see lettered section in 17.38.030.D Table 3.



1. **Description.** The main facade of the building is set back from the front lot line with a covered structure encroaching into the front setback. The resulting setback area can be defined by a fence or hedge to spatially maintain the edge of the street. The Porch may be one or two stories, is open on three sides, with all habitable space located behind the building setback line.

2. **Size.**

Width, Clear	10' min.	A
Depth, Clear	6' min.	B
Height, Clear	8' min.	C

3. **Pedestrian Access.**

Walkway and Stair Width	3' min.	D

4. **Miscellaneous.** Porch shall be open on three sides and have a roof. (Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.030.E Porch Engaged.

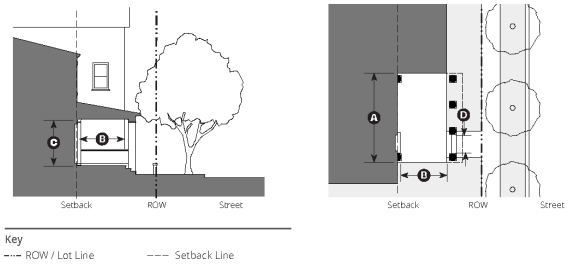
Example of an Engaged Porch (Local Example).

Example of a two-story Engaged Porch.

Example of an Engaged Porch.

General Note: Photos on this page are illustrative, not regulatory.

Figure 17.38.030.E(1). For A, B, and C, see lettered sections in 17.38.030.E Table 2. For D, see lettered section in 17.38.030.E Table 3.



1. **Description.** A portion of the main facade of the building is set back from the front lot line to create an area for a covered structure that projects from the facade that is set back. The resulting yard may be defined by a fence or hedge to spatially maintain the edge of the street. The Porch may be one or two stories and has two adjacent sides that are engaged to the building, while the other two sides are open.

2. **Size.**

Width, Clear	8' min.	A
Depth, Clear	6' min.	B
Height, Clear	8' min.	C

3. **Pedestrian Access.**

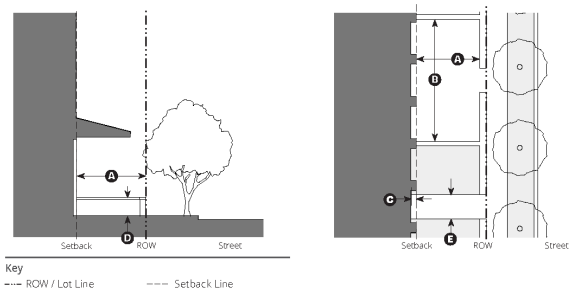
Walkway and Stair Width	3' min.	D

4. **Miscellaneous.** Porch shall be open on at least one side and have a roof. (Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.030.F Dooryard.

General Note: Photos on this page are illustrative, not regulatory.

Figure 17.38.030.F(1). For A, B, and C, see lettered sections in 17.38.030.F Table 2. For D, see lettered section in 17.38.030.F Table 3.



1. **Description.** The main facade of the building is set back from the front lot line, which is defined by a low wall, hedge, or other allowed screening, creating a small private area between the sidewalk and the facade. Each Dooryard is separated from adjacent Dooryards. The Dooryard may be raised or at grade.

2. **Size.**

Depth, Clear	6' min.	A
Width, Clear	15' min.	B
Depth of Recessed Entries	6' max.	C
Height of Dooryard Fence/ Wall above Finish Level	36" max.	D

3. **Pedestrian Access.**

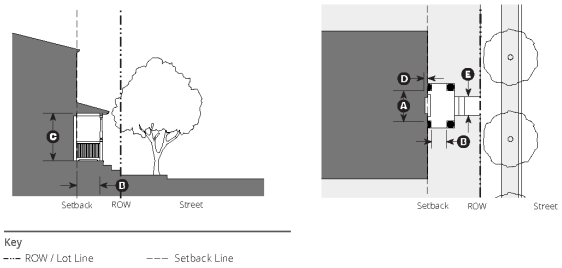
Walkway and Stair Width	3' min.	E

4. **Miscellaneous.** Each Dooryard shall provide access to only one ground floor entry. (Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.030.G Stoop.

General Note: Photos on this page are illustrative, not regulatory.

Figure 17.38.030.G(1). For A, B, and C, see lettered sections in 17.38.030.G Table 2. For D, see lettered section in 17.38.030.G Table 3.



1. **Description.** The main facade of the building is near the front lot line with steps to an elevated entry. The Stoop is elevated above the sidewalk to provide privacy along the sidewalk-facing rooms. Stairs or ramps from the Stoop may lead directly to the sidewalk or may be parallel to the sidewalk.

2. **Size.**

Width, Clear	5' min.	A
Depth, Clear	5' min.	B
Height, Clear	8' min.	C
Depth of Recessed Entries	6' max.	D

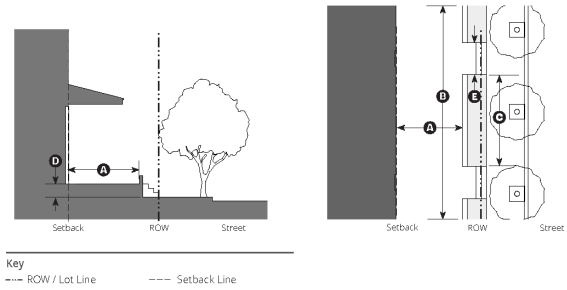
3. **Pedestrian Access.**

Walkway and Stair Width	3' min.	E

4. **Miscellaneous.** Entry doors are covered or recessed to provide shelter from the elements. All doors shall face the street. (Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

17.38.030.H Terrace.

Figure 17.38.030.H(1). For A, B, and C, see lettered sections in 17.38.030.H Table 2. For D, see lettered section in 17.38.030.H Table 3.



1. **Description.** The main facade is at or near the front lot line with steps leading to an elevated area providing public circulation along the facade. This type is used to provide outdoor areas along the sidewalk for housing.

2. **Size.**

Depth, Clear	8' min. residential 12' min. non-residential	A
Length of Terrace	150' max.	B
Distance between Stairs	50' max.	C
Height of Terrace above street level	24" max.	D

3. **Pedestrian Access.**

Walkway and Stair Width	3' min.	E

4. **Miscellaneous.** Where the Frontage Type requires the ground floor to be flush with the sidewalk, the Terrace shall be considered to be the sidewalk. A Terrace may be utilized to group several entries at a common elevation. Low walls used as seating are allowed. (Ord. BL2025-1005 § 1(Exhs. A, F), 2025)

Chapter 17.40

ADMINISTRATION AND PROCEDURES

Sections:

Article I. Zoning Administrator

17.40.010 Authority and responsibilities.
17.40.020 Board of zoning appeals support.

Article II. Official Zoning Map

17.40.030 Official zoning map established.
17.40.040 Zoning district boundaries.

Article III. Amendments to Zoning Code or Official Zoning Map

17.40.050 Authority.
17.40.055 Inclusionary housing incentive.
17.40.060 Applications.
17.40.070 Planning commission recommendation.
17.40.075 Submission of amendatory ordinances to the department of law.
17.40.080 Enactment.
17.40.090 Mapping of amendment.
17.40.100 Reapplications.
17.40.105 Specific plan—Purpose and intent.
17.40.106 Development plan.

Article IV. Overlay District Procedures

17.40.110 Generally.
17.40.120 Planned unit development (PUD) overlay.
17.40.130 Urban design overlay district.
17.40.140 Institutional overlay district.
17.40.150 Impact overlay district.
17.40.160 Neighborhood landmark (NL) district.

Article V. Site Plan Review and Approval

17.40.165 Applicability.
17.40.170 Final site plan.
17.40.175 Notice of final site plan.

Article VI. Board of Zoning Appeals

17.40.180 Powers.
17.40.190 Membership.
17.40.200 Terms of office.
17.40.210 Hearing required.
17.40.220 Assistance.
17.40.230 Conflict of interest.
17.40.240 Action by the board.
17.40.250 Time limits for permits.
17.40.260 Appeal of final site plan action.
17.40.270 Conditions.
17.40.275 Applicant.

Article VII. Special Exception Uses

17.40.280 Authority.
17.40.290 Applications.
17.40.300 Planning commission report.
17.40.310 Public hearing required.
17.40.320 Findings of fact.

Article VIII. Variances

17.40.330 Authority.
17.40.340 Limits to jurisdiction.
17.40.350 Applications.
17.40.360 Hearing required.
17.40.370 Review standards.
17.40.380 Special hillside exception.
17.40.390 Findings of fact.

Article IX. Historic Zoning Commission

17.40.400 Membership.
17.40.410 Powers and duties.
17.40.420 Preservation permit.
17.40.430 Moratorium for proposed historic overlay districts.

Article X. Tree Protection and Replacement Procedures

17.40.440 General.
17.40.450 Reserved.
17.40.460 General exemptions.
17.40.470 Tree removal permit procedures.
17.40.480 Off-site plantings.

Article XI. Sign Procedures

17.40.490 Permits and compliance tag.
17.40.500 Overall signage plan.
17.40.510 Unsafe, illegal, dilapidated and abandoned signs.

Article XII. Permits and Certificates of Compliance

17.40.520 Applicability.
17.40.530 Zoning permit application.
17.40.540 Final site plan authority.
17.40.545 Design-based multi-family design sites authority.
17.40.550 Permits within an historic overlay district.
17.40.560 Permits within the floodplain overlay district.
17.40.570 Permits within the airport overlay district.
17.40.580 Certificate of compliance.

Article XIII. Enforcement

17.40.590 Authority.
17.40.600 Notification.
17.40.610 Violations.
17.40.620 Penalties.
17.40.630 Remedies.

Article XIV. Nonconforming Uses, Structures, Lots and Signs

17.40.640 General.
17.40.650 Nonconforming uses.
17.40.660 Nonconforming structures.
17.40.670 Nonconforming lot area.
17.40.680 Nonconformance to operational performance standards.
17.40.690 Nonconforming signs.

Article XV. Public Notification

17.40.700 Applicability.
17.40.710 Notice by newspaper.
17.40.720 Notice by mail.
17.40.730 Public notice signs.

Article XVI. Application Fees

17.40.740 Generally.
17.40.750 Fees established by the zoning administrator.
17.40.760 Fees established by the planning commission.
17.40.770 Fees established by the board of zoning appeals.

Article XVII. Inclusionary Housing

17.40.780 Purpose and applicability of inclusionary housing provisions.
17.40.790 Requirements for inclusionary housing.
17.40.800 Standards for construction and occupancy of affordable and/or workforce housing.
17.40.810 Enforcement.
17.40.820 Sunset provisions.

Article I. Zoning Administrator

17.40.010 Authority and responsibilities.

The zoning administrator is granted the following authority and responsibilities by this title except as otherwise provided in the Metropolitan Code:

A. Interpretation and Administration. The zoning administrator shall interpret and administer the provisions of this Zoning Code;

B. Application Processing and Review. The zoning administrator shall process and review applications for all zoning permits and selected final site plans to insure compliance with the provisions of this title and with approvals granted by other departments, commissions and/or boards, as applicable;

C. Zoning Permits and Certificates of Compliance. The zoning administrator is authorized to issue zoning permits and to certify zoning compliance by the issuance of a certificate of compliance;

D. Enforcement of this Title. The zoning administrator shall enforce the provisions of this title;

E. Information and Advisement. The zoning administrator is responsible for informing and advising the general public regarding the provisions of this title;

F. Recordkeeping. The zoning administrator shall maintain current and permanent records relative to the adoption, amendment, administration and enforcement of this Zoning Code; and

G. Right of Entry Upon Land. The zoning administrator is authorized to enter upon any land within the jurisdiction of this title in fulfillment of all associated responsibilities and duties.

H. Construction, Application and Enforcement Consistent with Federal Law. The provisions of this title shall in every instance be construed, applied and enforced in a manner consistent with applicable federal law, including without limitation the Fair Housing Act ("FHA"), 42 U.S.C. § 3601 et seq.; the Americans with Disabilities Act ("ADA"), 42 U.S.C. § 12132 et seq.; and the Religious Land Use and Institutionalized Persons Act ("RLUIPA"), 42 U.S.C. § 2000cc et seq. Notwithstanding any other provision of this title to the contrary, the zoning administrator shall make reasonable accommodations in the provisions of this chapter and the rules, policies and practices of his office so that rights established or recognized under RLUIPA are protected and handicapped or disabled persons, or providers of housing for handicapped or disabled persons, are not discriminated against and are afforded an equal opportunity to use and enjoy dwellings. Before approving or denying a request for a reasonable accommodation under this chapter, the zoning administrator shall consult with the department of law and consider advice offered by any other metropolitan department having relevant jurisdiction or duties under the Metropolitan Charter or Code of Laws with respect to the request and any conditions that may be necessary to protect public health and safety.

I. Procedure for Obtaining Reasonable Accommodation.

1. For purposes of this section "person" shall mean an individual, group or institution. Any person who has a handicap or disability recognized by federal law, provides housing for such a person or whose religious exercise is burdened by a provision of this title, or a representative of any such person, may request in writing a reasonable accommodation as contemplated in this section. The right to request a reasonable accommodation shall be prominently displayed in the public area under the supervision of the zoning administrator and on the publicly accessible portion of any Internet website maintained by the metropolitan government and devoted to local codes enforcement and zoning matters. The zoning administrator shall make, and document in writing, specific findings of fact in support of every decision to grant or deny an accommodation sought under this paragraph and issue a determination within thirty days of the request being made. The zoning administrator's decision shall be reviewable by the board of zoning appeals upon the filing of a notice of appeal by any person or entity aggrieved by the decision. In addition, written notice of the zoning administrator's decision to grant or deny a reasonable accommodation shall be given to the council member whose district contains the parcel containing the reasonable accommodation and be mailed to all property owners within one thousand feet of the subject property within five business days of the zoning administrator's decision, and such notice must include information about the reasonable accommodation and the procedures to file a notice of appeal. Any appeal brought under this subsection must be in writing and filed with the board of zoning appeals not more than thirty days after issuance of the zoning administrator's decision. Documents comprising the record of any determination made with respect to the grant or denial of a request for an accommodation by the zoning administrator or the board of zoning appeals shall be kept on file for not less than three years from the date of final decision and available for public inspection upon reasonable notice.

2. The preceding paragraph shall not affect the existing procedures for initially requesting a demolition permit to demolish a structure listed or eligible for listing on the National Register of Historic Places or a structure meeting the criteria of T.C.A. § 7-51-1201 or structure within an historic overlay district. The procedures under Sections 16.28.190 and 17.40.410 shall continue to control the demolition of these historic structures except that the executive director of the historical commission and the historical commission shall make reasonable accommodations in the rules, policies, and practices of their offices concerning the demolition of historic structures so that handicapped or disabled persons or a provider of housing for a handicapped or disabled person are not discriminated against. They shall make, and document in writing, specific findings of fact in support of every decision to grant or deny an accommodation sought under this section. Their decisions shall be reviewable by the board of zoning appeals upon the filing of a notice of appeal by any person or entity aggrieved by the decision. Any appeal brought under this paragraph must be in writing and filed with the board of zoning appeals not more than thirty days after issuance of the their decision. Documents comprising the record of any determination made with respect to the grant or denial of a request for an accommodation by the executive director of the historical commission or the historical commission shall be kept on file for not less than three years from the date of final decision and available for public inspection upon reasonable notice.

3. The department of law shall advise the zoning administrator, the executive director of the historical commission, the historical commission and the board of zoning appeals concerning their duty to make reasonable accommodations for handicapped or disabled persons.

(Ord. BL2023-138 § 1, 2024; Ord. BL2022-1473 § 1, 2022; Ord. BL2022-1088 § 4, 2022; Ord. BL2012-313 §§ 1, 2, 2012; Ord. BL2008-333 § 1, 2009; Amdt. 3 with Ord. BL2000-364 § 1 (part), 2000; Ord. 96-555 § 10.1(A), 1997)

17.40.020 Board of zoning appeals support.

The zoning administrator is authorized by this title to provide support services to the board of zoning appeals and shall enforce all actions of that board. (Ord. 96-555 § 10.1(B), 1997)

Article II. Official Zoning Map

17.40.030 Official zoning map established.

The boundaries of zoning and overlay districts established by this title shall be depicted on the official zoning map of the Metropolitan Government of Nashville and Davidson County which is incorporated into the provisions of this title. The official zoning map shall be maintained by the metropolitan clerk. The metropolitan planning commission shall assist the metropolitan clerk in maintaining and updating the official zoning map. (Ord. 96-555 § 10.2(A), 1997)

17.40.040 Zoning district boundaries.

A. Zoning district boundaries depicted on the official zoning map shall be interpreted as follows:

1. Centerlines. Unless specified otherwise by the amending ordinance, district boundaries aligned along streets, alleys, controlled access highways, railroads,

watercourses, or pronounced topographic features shall be interpreted to fall along the centerlines of those features.

2. Lot or Deed Property Lines. District boundaries indicated on the official zoning map as approximately following platted lot lines or deeded property lines shall be interpreted as being coincident with those lines.

3. Uncertainties. In a case of uncertainty, the location of a district boundary shall be determined by the zoning administrator, subject to appeal to the board of zoning appeals.

B. Overlay district boundaries depicted on the official zoning map shall be interpreted as follows:

1. Overlay District Lines. Unless specified otherwise by the amending ordinance, overlay district boundaries indicated on the official zoning map that approximately follow zoning district lines shall be interpreted as being coincident with those zoning district lines.

2. Administrative Mapping Errors. Where it is determined that due to an administrative error, the official zoning map either depicts an overlay district boundary which encompasses property that was never intended to be included within the overlay district boundary or fails to depict property which was intended to be included within an overlay district boundary, and such determination is supported by official documentation, the planning commission shall modify the official zoning map for the metro clerk to accurately reflect the proper overlay district boundary. (Ord. 99-1756 §§ 1, 2, 1999; Ord. 96-555 § 10.2(B), 1997)

Article III. Amendments to Zoning Code or Official Zoning Map

17.40.050 Authority.

The metropolitan council may amend the text of this Zoning Code or the official zoning map in accordance with the following provisions. (Ord. 96-555 § 10.3(A), 1997)

17.40.055 Inclusionary housing incentive.

As an incentive to encourage developers and property owners to meet the affordable and workforce housing goals set forth in this title, all proposed residential development that seeks to increase development entitlements beyond that permitted by the current base zoning district shall comply with Section 17.40.780 (inclusionary housing). (Ord. BL2016-133 § 4, 2016)

17.40.060 Applications.

A. An application to amend the official zoning map to apply a planned unit development or urban design overlay district shall be filed with the metropolitan planning commission. All other applications to amend the official zoning map or these zoning regulations shall be filed either with the planning commission or the metropolitan clerk. An application may be initiated by the property owner, the metropolitan planning commission, or a member of the metropolitan council. All applications to amend the official zoning map filed with the metropolitan clerk shall be immediately forwarded to the planning commission and a copy sent to the metropolitan council office. No application initiated by a property owner or an agent of the property owner to amend the official zoning map or to apply a planned unit development, a neighborhood design overlay, or an urban design overlay to the property shall be accepted by the metropolitan planning commission or the metropolitan clerk if the metropolitan government has a valid lien on the property and/or if the property owner is delinquent in the payment of property taxes.

B. An application to amend the official zoning map of property owned by the metropolitan government may be initiated only by the mayor, the head of the department or agency to which the property is assigned, the director of public property administration, or the district member(s) of the metropolitan council representing the council district(s) where the property is located. If the application is initiated by the district council member, it must be accompanied by a preliminary report from the department or agency to which the property is assigned; and if such application is made on behalf of any board or commission, the application must first be authorized by a resolution of the board or commission. (Ord. BL2021-722 § 1, 2021; Ord. BL2005-713 § 1, 2005; Ord. BL2004-489 § 1, 2005; Amdt. 1 with Ord. BL2000-362 § 1, 2000)

17.40.070 Planning commission recommendation.

The planning commission shall review and make recommendations to the metropolitan council on proposed amendments to this Zoning Code and the official zoning map as provided in Section 18.02 of the Metropolitan Government Charter. A recommendation by the planning commission shall become null and void after a period of two years, unless superseded earlier by a subsequent recommendation. In its recommendation to the council, the planning commission shall provide an assessment of what effects a proposed zone change could have on the public school system and any street expected to carry twenty-five percent or more of the projected traffic in either the a.m. or p.m. peaks. (Ord. 96-555 § 10.3(C), 1997)

17.40.075 Submission of amendatory ordinances to the department of law.

All ordinances to amend the official zoning map or the Zoning Code shall be submitted to the metropolitan department of law for review at the time they are filed with the metropolitan clerk. The director of the department of law shall, no later than ten days prior to the date such ordinance is initially set for third reading before the metropolitan council, provide to each member of the metropolitan council and to the director of the council office an opinion as to whether or not the enactment of such ordinance may expose the metropolitan government to any liability for violation of federal, state or local law. (Amdt. 1 to Ord. BL2008-245 § 1, 2008; Ord. BL2008-245 § 1, 2008)

17.40.080 Enactment.

Enactment of an amendatory ordinance shall become effective in a manner consistent with the Metro Charter. Material testimony and evidence offered at public hearing may be considered by the council in its deliberations. Upon enactment of an amendment to this title, a notice of such shall be published in a newspaper of general circulation in Metropolitan Nashville and Davidson County within five days following such enactment announcing the new zoning classification and property affected. The change shall become effective on the date

of announcement. (Ord. 98-1268 § 1 (part), 1998; § 4(1) of Amdt. 1 with Ord. 96-555 § 10.3(D), 1997)

17.40.090 Mapping of amendment.

Upon enactment of an amendment to the official zoning map, the planning commission shall modify the map for the metro clerk accordingly, noting the amendatory ordinance number. (Ord. 96-555 § 10.3(E), 1997)

17.40.100 Reapplications.

A reapplication for the same or substantially same amendment to the official zoning map previously disapproved by the council shall not be accepted by the planning commission nor the metro clerk for a period of one year following council's last action. The council may reinitiate a rezoning bill at any time, however. (Ord. 96-555 § 10.3(F), 1997)

17.40.105 Specific plan—Purpose and intent.

The specific plan (SP) district is an alternative zoning process that may permit any land uses, mixture of land uses, and alternative development standards, of an individual property or larger area, to achieve consistency with the general plan. In return, a SP district requires the specific plan to be designed such that, at a minimum, the location, integration and arrangement of land uses, buildings, structures, utilities, access, transit, parking, and streets collectively avoid monotony, promote variety, and yield a context sensitive development. The specific plan cannot vary Section 17.40.055 (inclusionary housing incentive) and must comply with the building, fire and life safety codes adopted by the metropolitan government. (Ord. BL2016-133 § 5, 2016; Ord. BL2013-516 § 1, 2013; Amdt. 1 to Ord. BL2005-762, 2005; Ord. BL2005-762 § 7, 2005)

17.40.106 Development plan.

A. Pre-application Conference. Prior to the submittal of a rezoning application for the SP district, applicants are encouraged to meet with the executive director of the planning department or designee for guidance on the proposed development plan and its consistency with the principles and objectives of the general plan.

B. Application Submittal. An application shall be submitted by the property owner, the metropolitan planning commission, or a member of the metropolitan council and shall be accompanied by a development plan in a form and content established by the planning commission, along with all applicable processing fees. The development plan shall consist of written text, exhibits, and plans in a report format that describes existing conditions, the purpose and intent of the SP, the plan's consistency with the principles and objectives of the general plan, a list of allowable land uses, height and size of proposed building types, and development standards and a conceptual site plan, regulatory plan, or site-specific plan for the development. All items must be submitted, at the time of application, for the rezoning application to be deemed complete for review. Any omission of a required submittal item shall be identified, and its reason for omission explained in the development plan, including any application submittal waivers granted by the executive director of the planning department or designee.

C. Metropolitan Development and Housing Agency (MDHA) and/or Metro Historic Zoning Commission Action.

1. Any existing or proposed SP district located in whole or in part within a redevelopment district or a historic overlay district shall first be referred to and reviewed by MDHA and/or the metropolitan historic zoning commission for conformance with the relevant plan or guidelines. Any existing or proposed property for SP district which is, in whole or in part, listed on the National Register of Historic Places, identified as eligible for the National Register of Historic Places, or identified as worthy of conservation shall first be referred to and reviewed by the metropolitan historic zoning commission staff to determine the effects of the proposed SP district on the historic properties. Each agency shall provide a written recommendation to the planning commission on any aspects of the proposed SP district that would be in conflict with the adopted requirements, guidelines, or standards. Adoption of a SP district shall not relieve any property owner from full compliance with the adopted regulations and guidelines of the applicable redevelopment or historic overlay guidelines. Within a SP district, all development shall be consistent with the requirements of the SP district as well as any adopted redevelopment or historical overlay district, whichever is more restrictive.

2. Any existing or proposed SP district which includes existing or proposed property for SP district which is, in whole or in part, (i) listed on the National Register of Historic Places or (ii) identified as eligible for the National Register of Historic Places shall first be referred to and reviewed by the metropolitan historical commission staff to determine the effects of the proposed SP district on any historic properties. The MHC shall provide a written report to the metropolitan council regarding the effects of the proposed SP district on the historic properties.

D. Metro Planning Commission Action. The planning commission shall review a proposed SP district application for conformance and consistency with the development plan's stated purpose and intent and the

principles and objectives of the general plan. The planning commission shall act to provide a recommendation on the application. Within ten working days of an action, the commission's resolution shall be transmitted in writing to the applicant, the metro clerk, the zoning administrator and all other appropriate governmental departments.

E. Council Consideration. The metropolitan council shall consider an ordinance establishing a SP district and its associated development plan according to the procedures of Article III of this chapter (Amendments to the Official Zoning Map).

F. Changes to a SP District. An application to modify a SP district, in whole or in part, shall be filed with, and considered by, the planning commission according to the provisions of this section. The metropolitan council shall approve any proposed change in the geographic boundary of a SP district, the modification of specific performance criteria, development standards, land uses, development types or other requirements as shown, described, illustrated, identified, or noted on the last council-approved development plan. These changes shall be considered by the metropolitan council according to the procedures of Article III of this chapter (Amendments to the Official Zoning Map). That portion of a SP plan being amended by the metropolitan council shall adhere to all provisions of this code.

G. Final Site Plan. All final site plans shall conform to the SP development plan, and shall be submitted in conformance with Section 17.40.170.B. of this title. Approval shall be based on a finding that the final site plan conforms to the approved development plan. Where the development plan approved by the metropolitan council is of such detail for a specific land use, phase, or area of development that the submittal of a final site plan would essentially duplicate the applicable portion of the approved development plan, the executive director of the planning department or designee may waive the submittal of a final site plan. In such cases, an applicant shall proceed to the Codes Department and apply for all required construction permits.

H. Development Approvals and Permits. Approval of a SP district does not relieve a property owner of any subdivision plat, final site plan, building permit, or other metro department reviews and approvals. Except as specifically provided for in the individual SP ordinance, all development shall be undertaken in conformance with adopted departmental rules and procedures. Where specific amendments to departmental rules and procedures have been included in the adopted SP ordinance, all reviews and permits shall only be issued in conformance with the provisions of the approved SP development plan; however, no rule or procedure amendment shall be implemented if it would vacate or violate any federal or state requirement and all applications must fully comply with Chapter 15.64, "An Ordinance for Stormwater Management" as well as the adopted subdivision regulations.

I. Review of a Development Plan.

1. Authorization to Review. The metropolitan planning commission is authorized to review any SP, or portion thereof, to determine whether development activity has occurred within four years from the date of the latter of initial enactment, subsequent amendment, or re-approval by the metropolitan council, and, if determined inactive in accordance with subsection 4.a. of this section, to recommend legislation to the council to re-approve or amend the SP or rezone the property.

2. Initiation. Review of a SP or portion thereof to determine inactivity may be initiated by the metropolitan planning commission

a. On its own initiative,

b. By written request of a member of the metropolitan council, or

c. By written request of a property owner within the area of the SP requested for review.

d. Notice of Review. Within five business days of the initiation of a review, the planning commission shall send written notice to the district councilmember(s) for the district(s) in which the SP is located, to the zoning administrator, and to the owner(s) of property in the portion of the SP to be reviewed.

3. Metropolitan Planning Commission Procedure. Within ninety days from the initiation of its review, the planning commission shall hold a public hearing in accordance with the planning commission's adopted Rules and Procedures to concurrently consider if the SP or portion thereof should be classified as inactive and, if found inactive, provide a recommendation to the metropolitan council on legislation to re-approve or amend the SP or rezone the property.

a. Determination of Inactivity. To determine that a SP or portion thereof is inactive, the planning commission shall establish each of the findings below. The planning commission may also take into consideration the aggregate of actions, if any, taken within the prior twelve months to develop the portion of the SP under review.

i. Four or more years have elapsed since the latter of:

(1) The effective date of the initial enacting ordinance of the SP,

(2) The effective date of any ordinance approving an amendment to the SP,

(3) The effective date of any ordinance re-approving or amending a SP after it has been reviewed and decided in accordance with subsection 5.a. or b. of this section, or

(4) The deadline for action by the metropolitan council in accordance with subsection 5.d. of this section, and

ii. Construction has not begun on the portion of the SP under review; construction shall mean physical improvements such as, but not limited to, water and sewer lines, footings, and/or foundations developed on the portion of the SP under review; clearing, grading, the storage of building materials, or the placement of temporary structures shall not constitute beginning construction, and

iii. Neither right-of-way acquisition from a third party nor construction has begun on off-site improvement(s) required to be constructed by the metropolitan council as a condition of the SP approval.

b. Recommendation to Metropolitan Council. If the planning commission determines that the SP or portion thereof under review is inactive, the commission shall recommend legislation to the metropolitan council to re-approve or amend the SP or rezone the property, or portion thereof that is determined to be inactive. In recommending legislation, the planning commission shall:

i. Determine whether the existing SP is consistent with the goals, policies, and objectives of the General Plan and any applicable specific redevelopment, historic, neighborhood, or community plans adopted by the metropolitan government.

ii. Recommend legislation to re-approve or amend the SP or rezone the property, including as required:

(1) The appropriateness of the continued implementation of the development plan or phase(s) as adopted, based on current conditions and circumstances; and

(2) Any recommendation to amend the development plan or individual phase(s) to properly reflect existing conditions and circumstances, and the appropriate base zoning classification(s) should the SP district be removed, in whole or in part, from the property.

c. When Inactivity is Not Established. If the planning commission determines that the SP or portion thereof under review does not meet the criteria of Section 17.40.106.I.3.a. for inactivity, the SP review is concluded, the limitations of subsection 5. are terminated, and a re-review of the SP shall not be initiated in the manner of subsection 2. of this section for twelve months following the commission's determination.

4. Metropolitan Council Consideration. The procedures of Article III of this chapter (Amendments) shall apply to metropolitan council consideration of ordinance(s) to:

a. Re-approve the existing SP,

b. Amend the SP, or

c. Rezone the property.

d. Decline to take action by ordinance. If the metropolitan council does not act to re-approve or amend the SP or rezone the property within six months of receipt of the planning commission's recommended legislation, the property may be developed in accordance with the development plan last approved by the metropolitan council, or subsequently revised by the planning commission.

5. No specific plan application, grading permit, nor any building permit for new building construction shall be submitted, reviewed or issued within the SP or portion thereof for which a review has been initiated until the earlier of:

a. The metropolitan council's final action to re-approve or amend the SP or rezone the property, or

b. Six months following the planning commission's submission of a recommendation to the metropolitan council, or the deadline for that submission should the commission fail to act. (Ord. BL2019-1636 § 1, 2019; Ord. BL2016-266 §§ 2, 3, 2016; Amdt. 1 to Ord. BL2013-516 §§ 3, 6, 2013; Ord. BL2013-516 §§ 2—6, 2013; Amdt. 1 to Ord. BL2005-762, 2005; Ord. BL2005-762 § 7, 2005)

Article IV. Overlay District Procedures

17.40.110 Generally.

All overlay districts established by this title shall be made a part of the official zoning map in accordance with the procedures of Article III of this chapter. The following provisions shall apply to the administration of those overlay districts. (Ord. 96-555 § 10.4(A), 1997)

17.40.120 Planned unit development (PUD) overlay.

The following provisions apply to all planned unit development (PUD) districts. No zoning permits shall be issued within a PUD district prior to approval of a master development plan according to the procedures of this article and a final site plan according to the procedures of Article V of this chapter.

A. Master Development Plan. The development and use of all land within a planned unit development (PUD) district shall be in keeping with an approved master development plan and the applicable provisions of its associated zoning district(s).

1. Application Requirements. A master development plan application shall be submitted by the landowner (or an authorized agent) in form and content established

by the planning commission, along with a processing fee assessed according to schedules adopted by the planning commission. Within five business days from receiving a master development plan application, the planning commission shall send written notice to the district councilmember for the district(s) in which the property that would be subject to the master development plan is located as to the substance of the proposed development. The development concept of all land areas encompassed by a proposed master development plan shall be adequately described on scaled drawings and in associated reports. Applications shall define the general form and scope of proposed development in sufficient detail to demonstrate compliance with all development and performance standards of Chapter 17.36, Article II. At a minimum, the master development plan application shall adequately describe:

a. All land area to be encompassed by the planned unit development district and its associated master development plan;

b. The general orientation and size of principal structures and associated parking areas; development approaches to be employed to comply with Chapter 15.64, "An Ordinance for Storm Water Management"; landscape and buffer areas required by Chapter 17.24; the location, size and general treatment of environmentally sensitive areas as defined by Chapter 17.28; the general location and size of existing and proposed water mains and sewer trunk lines required to service the development; and general traffic routes (external and internal) to and from the development with major access points identified;

c. Tabular data sufficient to demonstrate compliance with all applicable provisions of this title, including the range and scope of proposed land uses, densities, floor area ratios or impervious surface ratios as applicable to development type; and land areas devoted to each type of general land use and phase of development;

d. A proposed development schedule if the project is to be phased; and

e. A traffic impact study if required by Section 17.20.140; identification of new streets and proposed improvements to existing streets, off-site utility systems or the drainage network considered necessary to support the proposed scope of development, with intended assignments of responsibility for providing those improvements.

2. Incomplete Applications. If the planning department determines that the application fails to satisfy the minimum requirements of an adopted submittal checklist, the applicant shall be notified in writing within ten working days that the application has been rejected, with the notification stating the reason(s) for rejection.

3. Written Report. The staff of the planning commission shall review all applications and submit a written report to the planning commission to serve as a basis for action. The report shall adequately describe the location, nature and scope of the proposed master development plan, and the manner in which the plan demonstrates conformance with the development and performance standards of Chapter 17.36, Article II and other applicable provisions of this title.

4. Planning Commission Action. The planning commission shall act to approve, conditionally approve, or disapprove a complete application. In its recommendation to the council, the planning commission shall provide an assessment of what effects a proposed planned unit development could have on the public school system and any street expected to carry twenty-five percent or more of the projected traffic in either the a.m. or p.m. peaks. Within ten working days of an action, the commission's resolution shall be transmitted in writing to the property owner, the metro clerk, the zoning administrator and all other appropriate governmental departments.

a. Approval. Approval of a PUD master development plan shall be based on findings that the performance standards of Chapter 17.36, Article II and all other applicable provisions of this title have been satisfied.

b. Conditional Approval. If the planning commission approves a master development plan subject to conditions, all conditions shall be transmitted in writing to the applicant. The application will not be considered approved until the applicant concurs with all conditions in writing and provides all prescribed amendments to the application.

c. Disapproval. If the planning commission acts to disapprove a master development plan application, the reasons for that disapproval shall be stated in writing and transmitted to the applicant.

5. Council Consideration. The metropolitan council shall consider an ordinance establishing a planned unit development (PUD) district and its associated preliminary master development plan according to the procedures of Article III of this chapter (Amendments). Testimony and evidence material to the standards of Chapter 17.36, Article II may be considered by the council in its deliberations.

6. Recording PUD District. Within sixty days of enactment of an adopting ordinance by the council, all property owners within the PUD district shall record with the register of deeds a boundary plat or suitably comparable document identifying that the affected properties are subject to the provisions of the PUD overlay district.

B. Final Site Plan. The planning commission shall process, review and act to approve, approve with conditions or disapprove a final site plan application for all properties within a planned unit development district according to the procedures of Article V of this chapter.

C. Final Approval by Stages. If so reflected on the master development plan, the planning commission may allow the staging of final development. Each phase of development shall adhere to all applicable provisions and standards of this title. If the provision of required infrastructure is to be phased, an implementation schedule and associated cost sharing formula may be required by the planning commission prior to or concurrent with the first phase of development.

D. Transfer of Ownership. Property may be subdivided in a manner consistent with a master development plan. All subdivision of property shall conform with the subdivision regulations of Nashville and Davidson County.

E. Common Open Space Maintenance. When provided, common open space shall be maintained subject to the following provisions:

1. Responsibility. Common open space areas shall be owned and maintained by an incorporated association for the mutual benefit of residents or property owners within the PUD district and shall be adequately described on a recorded plat of subdivision approved by the planning commission. All property owners within the PUD district shall be a member of the association which shall be responsible for the assessment of dues to cover the reoccurring costs of maintaining all common elements. Common open areas may be offered for dedication to the metropolitan government subject to approval by the planning commission and the metropolitan council.

2. Failure to Maintain. When the failure of an association to properly maintain a common open space results in a public nuisance, the zoning administrator is empowered to initiate appropriate measures to eliminate the nuisance. If public funds are utilized to remove a nuisance and/or maintain common open space, those costs shall be assessed proportionally against all properties within the development in the form of a tax lien. This provision shall not apply to any open space that has been dedicated to and accepted by the metropolitan government.

F. Changes to a Planned Unit Development District.

1. Modification of Master Development Plan. Applications to modify a master development plan in whole or in part shall be filed with and considered by the planning commission according to the provisions of subsection A of this section. If approved by the commission, the following types of changes shall require concurrence by the metropolitan council in the manner described:

a. Land area being added or removed from the planned unit development district shall be approved by the council according to the provisions of Article III of this chapter (Amendments);

b. Modification of special performance criteria, design standards, or other requirements specified by the enacting ordinance shall be authorized by council ordinance;

c. A change in land use or development type beyond that permitted by the specific underlying zoning district shall be authorized only by council ordinance; or

d. An increase in the total number of residential dwelling units above the number last authorized by council ordinance or, for a PUD district enacted by council ordinance after September 1, 2006, an increase in the total number of residential dwelling units above the number last authorized by council ordinance or above the number last authorized by the most recent modification or revision by the planning commission; or

e. When a change in the underlying zoning district is associated with a change in the master development plan, council shall concur with the modified master development plan by ordinance.

e.[f.] Any modification to a master development plan for a planned unit development or portion thereof that meets the criteria for inactivity of Section 17.40.120.H.4.a.

2. Changes to a Final Site Plan. Applications to modify a previously approved final site plan shall follow the procedures of Section 17.40.170.

3. Addition of a Special Exception Use. The addition or relocation of a special exception use otherwise permitted by the underlying base zone district shall be considered by the board of zoning appeals according to the applicable provisions of Chapter 17.16, Article III and Article VII of this chapter and may be approved upon consideration of a recommendation from the planning commission.

4. Subsequent Change in Zoning District. Following adoption of a PUD district, no subsequent change in zoning district classification shall occur within that PUD without concurrent reapproval of the master development plan by the planning commission and council.

5. Cancellation of a PUD District. Cancellation of a PUD district may be initiated by the planning commission, the metropolitan council, or a property owner within the PUD district. A PUD district shall be canceled by ordinance according to the provisions of Article III of this chapter.

G. Status of Earlier Planned Unit Developments (PUDs). The following provisions shall apply to a planned unit development (PUD) approved under the authority of a previous Zoning Code and remaining a part of the official zoning map upon the enactment of this title.

1. The planned unit development (PUD) shall be recognized by this title according to the master development plan and its associated conditions specified in the PUD ordinance last approved by the metropolitan council prior to the effective date of the ordinance codified in this title.

2. The planning commission may consider and approve minor modifications to a previously approved planned unit development subject to the following limitations. All other modifications shall be considered by the planning commission as an amendment to the previously approved planned unit development and shall be referred

back to the council for approval according to the procedures of Section 17.40.120(A)(5). That portion of a planned unit development master plan being amended by the council shall adhere to all provisions of this code:

a. In the judgment of the commission, the change does not alter the basic development concept of the PUD;

b. The boundary of the planned unit development overlay district is not expanded;

c. There is no change in general PUD classification (e.g. residential to any classification of commercial or industrial PUD; any change in general classification of a commercial PUD; or any change in general classification of an industrial PUD);

d. There is no deviation from special performance criteria, design standards, or other specific requirements made part of the enacting ordinance by the council;

e. There is no introduction of a new vehicular access point to an existing street, road or thoroughfare not previously designated for access;

f. There is no increase in the total number of residential dwelling units originally authorized by the enacting ordinance;

g. There is no change from a PUD approved exclusively for single-family units to another residential structure type;

h. The total floor area of a commercial or industrial classification of PUD shall not be increased more than ten percent beyond the total floor area last approved by the council;

i. If originally limited to office activities, the range of permitted uses in a commercial PUD shall not be expanded to broader classifications of retail, commercial or industrial activities, unless such activities are otherwise permitted by the underlying base zone district. The permitted uses within the planned unit development shall be those specifically authorized by the council through the adopted master development plan, or by the existing base zone district beneath the overlay, whichever is more permissive.

j. If originally limited to office, retail and other general commercial activities, the range of permitted uses in a commercial PUD shall not be expanded to include industrial activities, unless such activities are otherwise permitted by the underlying base zone district. The permitted uses within the planned unit development shall be those specifically authorized by the council through the adopted master development plan, or by the existing base zone district beneath the overlay, whichever is more permissive.

k. If originally limited to commercial activities, the range of permitted uses in a commercial PUD shall not be expanded to broader classifications of retail, commercial or industrial activities, unless such activities are otherwise permitted by the underlying base zone district. The permitted uses within the planned unit development shall be those specifically authorized by the council through the adopted master development plan, or by the existing base zone district beneath the overlay, whichever is more permissive.

l. In the determination of the commission, the nature of the change will have no greater adverse impact on those environmentally sensitive features identified in Chapter 17.28 of this code than would have occurred had the development proceeded in conformance with the previous approval.

m. In the judgment of the commission, the planned unit development or portion thereof to be modified does not meet the criteria for inactivity of Section 17.40.120.H.4.a.

3. Application of Code Standards.

a. Where modifications to a previously approved planned unit development are deemed to be minor, as determined under subsection (G)(2)(a) through (k) of this section, the parking and loading standards of Chapter 17.20, and the landscaping standards of Chapter 17.24 shall apply to all new development commencing under building permits issued after the effective date the ordinance codified in this chapter. All other chapters shall be applicable to the extent not inconsistent with the terms and conditions of the previously approved planned unit development.

b. Where modifications to a previously approved planned unit development are not deemed to be minor, as determined under subsection (G)(2)(a) through (k) of this section, all chapters of this code shall be applicable. Notwithstanding the foregoing, when legislation modifying the planned unit development is approved by the metropolitan council that expressly includes provisions that are not consistent with the chapters of this code, such express provisions shall govern however, the removal of any building, fire and life safety codes adopted by the metropolitan government shall be prohibited.

H. Periodic Review of Planned Unit Developments.

1. Authorization to Review. The metropolitan planning commission is authorized to review any planned unit development overlay district (PUD), or portion thereof, to determine whether development activity has occurred within six years from the date of the latter of initial enactment, subsequent amendment, or re-approval by the metropolitan council, and, if determined inactive in accordance with subsection 4.a. of this section, to recommend legislation to the council to re-approve, amend or cancel the PUD and make conforming changes to the base zoning if necessary.

2. Initiation. Review of a PUD or portion thereof to determine inactivity may be initiated by the metropolitan planning commission

a. On its own initiative,

b. By written request of a member of the metropolitan council, or

c. By written request of a property owner within the area of the PUD overlay requested for review.

d. Notice of Review. Within five business days of the initiation of a review, the planning commission shall send written notice to the district councilmember(s) for the district(s) in which the PUD is located, to the zoning administrator, and to the owner(s) of property in the portion of the PUD overlay district to be reviewed.

3. Metropolitan Planning Commission Procedure. Within 90 days from the initiation of its review, the planning commission shall hold a public hearing in accordance with the planning commission's adopted Rules and Procedures to concurrently consider if the PUD or portion thereof should be classified as inactive and, if found inactive, provide a recommendation to the metropolitan council on legislation to re-approve, amend or cancel the PUD and make conforming changes to the base zoning district if necessary.

a. Determination of Inactivity. To determine that a PUD or portion thereof is inactive, the planning commission shall establish each of the findings i. through iii. below. The planning commission may also take into consideration the aggregate of actions, if any, taken by the owner of the PUD within the prior 12 months to develop the portion of the PUD under review.

i. Six or more years have elapsed since the latter of

(1) The effective date of the initial enacting ordinance of the PUD,

(2) The effective date of any ordinance approving an amendment to the PUD,

(3) The effective date of any ordinance re-approving or amending a PUD after it has been reviewed and decided in accordance with subsection 5.a. or b. of this section, or

(4) The deadline for action by the metropolitan council in accordance with subsection 5.d. of this section, and

ii. Construction has not begun on the portion of the PUD under review; construction shall mean physical improvements such as, but not limited to, water and sewer lines, footings, and/or foundations developed on the portion of the PUD under review; clearing, grading, the storage of building materials, or the placement of temporary structures shall not constitute beginning construction, and

iii. Neither right-of-way acquisition from a third party nor construction has begun on off-site improvement(s) required to be constructed by the metropolitan council as a condition of the PUD approval.

b. Recommendation to Metropolitan Council. If the planning commission determines that the PUD or portion thereof under review is inactive, the commission shall recommend legislation to the metropolitan council to re-approve, amend, or cancel the PUD, or portion thereof that is determined to be inactive, including conforming changes to the base zoning district if necessary. In recommending legislation, the planning commission shall:

i. Determine whether the existing PUD is consistent with the goals, policies, and objectives of the General Plan and any applicable specific redevelopment, historic, neighborhood, or community plans adopted by the metropolitan government.

ii. Recommend legislation to re-approve, amend, or cancel the existing overlay district, including as required:

(a) The appropriate base zoning district(s), if different from current base zoning, to retain and implement the PUD overlay district as it exists.

(b) Any amendment(s) to the inactive PUD's master development plan and base zoning district(s) to reflect existing conditions and circumstances, including the land use policies of the general plan and the zoning of properties in the area.

(c) Base zoning district(s) consistent with the adopted general plan, should the PUD overlay district be recommended for cancellation.

Failure of the planning commission to act within 90 days from the initiation of a review shall be considered a recommendation to re-approve by ordinance the existing PUD overlay district without alteration.

c. When Inactivity Not Established. If the planning commission determines that the PUD or portion thereof under review does not meet the criteria of Section 17.40.120.H.4.a for inactivity, the PUD review is concluded, the limitations of subsection 5 are terminated, and a re-review of the PUD shall not be initiated in the manner of subsection 2 of this section for 12 months following the commission's determination.

4. Metropolitan Council Consideration. The procedures of Article III of this chapter (Amendments) shall apply to metropolitan council consideration of ordinance(s) to:

a. Re-approve the existing PUD master plan and apply the appropriate base zoning district(s), if different from current base zoning,

b. Amend the PUD master plan, or

c. Cancel the PUD overlay district, including any change(s) to the underlying base zoning district.

d. Decline to take action by ordinance. If the metropolitan council does not act to re-approve, amend, or cancel the PUD within six months of receipt of the planning commission's recommended legislation, the property may be developed in accordance with the master development plan last approved by the metropolitan council, or subsequently revised by the planning commission.

5. No planned unit development application, grading permit, nor any building permit for new building construction shall be submitted, reviewed or issued within the PUD overlay district or portion thereof for which a review has been initiated until the earlier of:

a. The metropolitan council's final action to re-approve, amend or cancel the PUD overlay district, or

b. Six months following the planning commission's submission of a recommendation to the metropolitan council, or the deadline for that submission should the commission fail to act. (Ord. BL2016-266 § 1, 2016; Amdt. 1 to Ord. BL2012-264 § 1, 2013; Ord. BL2012-264 § 1, 2013; Ord. BL2007-1367 §§ 1—3, 2007; Amdts. 1, 2 to Ord. BL2006-1051 § 1, 2006; Ord. BL2006-1051 § 1, 2006; Ord. BL2005-553 § 1, 2005; Ord. BL99-117 § 1 (part), 2000; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; § 4(2) of Amdt. 1 with Ord. 96-555 § 10.4(B), 1997)

17.40.130 Urban design overlay district.

A. Application for an Urban Design Overlay District. The applicable goals and objectives of a proposed urban design overlay district shall be established. An urban design overlay district application shall also include a detailed design plan and all associated design criteria required to implement that plan. The form and content of an urban design overlay district application shall be established by the planning commission. Applications shall be filed with the planning commission.

B. Planning Commission Recommendation. The planning commission shall review a proposed urban design overlay district application for conformance with the stated design goals and objectives. The planning commission shall act to recommend approval, approval with conditions or disapproval of the application. Within ten working days of an action, the commission's resolution shall be transmitted in writing to the applicant, the metro clerk, the zoning administrator and all other appropriate governmental departments.

1. Approval. Approval of a proposed urban design overlay shall be based on findings that the stated design goals and objectives have been satisfied.

2. Conditional Approval. The planning commission may recommend approval of an urban design overlay district application subject to any conditions deemed necessary to fulfill the goals and objectives. All conditions shall be transmitted in writing to the applicant. The application will not be considered approved until the applicant concurs with all conditions in writing and provides all prescribed amendments to the application.

3. Disapproval. If the planning commission acts to disapprove an application, the reasons for that disapproval shall be stated in writing and transmitted to the applicant.

C. Council Consideration. The metropolitan council shall consider an ordinance establishing an urban design overlay district and its associated design plan according to the procedures of Article III of this chapter (Amendments). All property owners within and proximate to a proposed urban design overlay district shall be notified according to the procedures of Article XV of this chapter. Testimony and evidence material to the standards of Chapter 17.36, Article VIII may be considered by the council in its deliberations.

D. Final Site Plan Approval. For property located within an urban design overlay district, a final site plan application shall be submitted for review and approval by the planning commission in a manner consistent with the procedures of Section 17.40.170B. Final site plan applications shall be of sufficient detail to fully describe the ultimate form of development and demonstrate full compliance with the design plan and all applicable design standards established by the overlay district. Final site plan approval by the planning commission shall be based on findings that all design standards of the overlay district and other applicable requirements of this code have been satisfied.

E. Changes to an Urban Design Overlay District. An application to modify an approved urban design overlay district shall be filed with the planning commission. The planning commission shall review all proposed changes according to the procedures of subsection B of this section. A proposed change in the geographic boundary of an urban design overlay district on the official zoning map shall be considered by the council according to the procedures of Article III of this chapter (Amendments). (Ord. 2001-856 § 1 (part), 2001; § 4(3) of Amdt. 1 with Ord. 96-555 § 10.4(C), 1997)

17.40.140 Institutional overlay district.

A. New Applications. An application to establish an institutional overlay district shall be filed with the planning commission in form and content established by the planning commission, and include a campus master development plan as defined in Chapter 17.36, Article IX. The application shall include properties owned by the institution that are nearby the proposed institutional

overlay district if existing or planned uses on those properties may have an impact on the residential area adjoining the proposed institutional overlay district.

B. Planning Commission Action. The planning commission shall review an application to apply the institutional overlay district and the associated campus master development plan. The planning commission shall act to recommend approval, approval with conditions or disapproval of the application Within ten working days of an action, the commission's resolution shall be transmitted in writing to the applicant, the metro clerk, the zoning administrator and all other appropriate governmental departments.

1. Approval. The planning commission's recommendation of approval of a proposed institutional overlay district and the associated campus master development plan shall be based on findings that the master plan is compatible with the surrounding neighborhood and the essential infrastructure is adequate to support the proposed pattern and intensity of development. A recommendation of approval of the master plan shall further require a finding by the planning commission that the master plan arranges campus-related land uses in a manner that preserves the integrity and long-term viability of nearby residential areas, and provides for methods of implementing the master plan in a manner that minimizes disruption and inconvenience to other landowners within the overlay district and the surrounding community in general.

2. Conditional Approval. The planning commission may recommend approval of the institutional overlay district and the associated campus master development plan subject to conditions. All conditions shall be transmitted in writing to the applicant. The institutional overlay district and associated campus master development plan shall not be considered recommended for approval until the applicant concurs with all conditions in writing and provides all prescribed amendments to the master plan and/or application.

3. Disapproval. If the planning commission recommends disapproval of the proposed institutional overlay district and associated campus master development plan, the reasons for that recommendation of disapproval shall be stated in writing and transmitted to the applicant.

C. Council Consideration. An institutional overlay district and associated campus master development plan shall be approved upon adoption of an ordinance by the metropolitan council, following a recommendation from the planning commission, according to the procedures of Article III of this chapter (Amendments). Testimony and evidence material to the provisions of Chapter 17.36, Article IX may be considered by the council in its deliberations.

D. Final Site Plan Approvals. A final site plan application for property lying within an institutional overlay district shall be reviewed and acted on by the planning commission according to the procedures of Section 17.40.170(B). Approval shall be based on a finding that the final site plan conforms with the approved campus master development plan and all other applicable provisions of this title.

E. Changes to an Institutional Overlay District. An application to modify an approved campus master development plan and/or institutional overlay district shall be filed with the planning commission. The planning commission shall review all proposed changes according to the procedures of subsection B of this section. Changes shall be considered as follows:

1. Minor Modifications. The planning director shall have the authority to grant minor modifications to the approved campus master development plan that do not exceed ten percent within the modification area of any square footage limitation, building setback, lot coverage, landscaping requirement, parking requirement, or dimensional requirement relating to fences or walls. At the planning director's discretion, any minor modification may be referred to the planning commission for review and action as set forth in Section 17.40.140(B).

2. Major Modifications. All other modifications to the institutional overlay district and approved campus master development plan shall be considered major modifications except that it shall not be considered a major modification to rearrange proposed campus buildings unless the rearrangement results in buildings being placed more than ten percent closer to the existing campus boundary or the overlay district boundary. Major modifications shall be considered by the metropolitan council in accordance with Article III of this chapter (Amendments), following review and recommendation by the planning commission as set forth in Section 17.40.140(B). (Ord. BL2003-1399 § 7, 2003; §4(4) of Amdt. 1 with Ord. 96-555 § 10.4(D), 1997)

17.40.150 Impact overlay district.

A. Amendment Procedures. Whenever the metropolitan council determines that an existing or a proposed and funded public facility, such as a freeway, may stimulate secondary land use changes that would be damaging to a broader community, special procedures shall be established and implemented in accordance with this article to apply to a specifically defined impact overlay district.

B. Procedures for Creation and for Abolishing Impact Overlay District.

1. An impact overlay district is a geographic entity of definite physical boundaries overlaying a previously established zoning district and any other zoning overlays in which the metropolitan council has determined that a public facility may introduce interest in zoning district changes that would have a deleterious secondary impact on other development or on a public facility.

2. Procedures for Adopting an Impact Overlay District. The metropolitan council by resolution, or the metropolitan mayor, may request the metropolitan planning commission, or the metropolitan planning commission on its own may initiate the identification of an impact area which may be subject to zoning district changes in the vicinity of a public facility that has one or more of the following characteristics: Existing; is proposed and funded and authorized; or its specific location is fixed by an adopted plan by a governmental body. Within sixty days from the receipt of such request or resolution and after conducting a public hearing in the area under consideration, the metropolitan planning commission shall submit to the metropolitan council a report regarding the proposed impact area containing either:

a. An unfavorable recommendation to the establishment of an impact overlay district; the report shall contain a justification for such recommendation in terms of the objective of this article and Article X of Chapter 17.36; or

b. A favorable recommendation shall contain a factual connection between the public facility and potentially damaging land use changes in terms of the objectives of this article and Article X of Chapter 17.36. The planning commission shall delineate a proposed impact overlay district that in its judgment will include all but not exceed the territory closely linked to the public facility.

Unless the metropolitan council grants an extension for a definite period of time, if after the sixty-day period the planning commission has not made a recommendation, the metropolitan council may proceed to delineate an impact overlay district and submit it by resolution to the metropolitan planning commission for a recommendation. The planning commission has thirty days after the effective date of the resolution to make a recommendation to the metropolitan council regarding the area proposed by resolution. If the planning commission does not make a recommendation within thirty days, the council may proceed as if the area had a favorable recommendation from the planning commission.

The adoption of an impact overlay district shall be by an amending ordinance in accordance with the applicable provisions of this chapter (Article III). The boundary of an adopted impact overlay district shall be placed by the metropolitan clerk directly on the official zoning map overlaying the existing zoned districts and overlays. Existing impact overlay districts may be amended through the same procedure.

3. Procedures for Abolishing an Impact Overlay District. The metropolitan council by resolution, or the metropolitan mayor may request the metropolitan planning commission, or the metropolitan planning commission on its own may initiate an evaluation of an adopted impact overlay district and a recommendation for its continuation or its discontinuation. Within sixty days from the receipt of such request or resolution, the metropolitan planning commission shall submit to the metropolitan council a report containing:

a. A recommendation action regarding the continuance or discontinuance of the impact overlay district; and

b. Factual evidence that the impact overlay procedure is ineffective and unnecessary and should be discontinued or is effective and necessary and should be continued.

If the planning commission fails to report within sixty days of an introduction of an amending ordinance to abolish an impact area, the council may proceed as if the commission has disapproved the abolishing of the impact overlay district.

C. Effect of an Impact Overlay District. Any proposed amendment to a zoning district or any zoning overlay within an adopted impact overlay district shall adhere to the procedures contained herein in addition to all other applicable provisions of this title.

D. Impact Overlay District Policies.

1. Within sixty days after the effective date of the adopted impact overlay district, the planning commission shall submit an impact area policy outlining the problems of the impact area, objectives pertaining to the resolution or management of such problems, and policies for the development of the impact area. The recommended impact area policy shall be consistent with the long-range, general comprehensive plan for Nashville-Davidson County. Upon consideration of the recommended policy, the metropolitan council may adopt by ordinance an impact overlay district policy as a part of this zoning title. The metropolitan council may amend the impact overlay district policy by ordinance after a recommendation by the metropolitan planning commission.

2. Within two weeks of the effective date of the adopted impact overlay district, the planning commission shall hold a public meeting in the area affected for the purpose of establishing a citizen participation procedure in the development of the recommended

impact area policy. Prior to submitting an impact overlay district policy to the metropolitan council, the planning commission shall hold at least one public hearing regarding such policy in the area affected. The metropolitan council shall hold a public hearing on the recommended policy in a manner similar to any other amendments to this title.

E. Procedure for Zoning District and Overlay Amendments within an Impact Overlay District. All amendments to the zoning districts and overlays specific to an impact overlay district shall be considered by the following procedure:

1. The metropolitan planning commission shall review the proposed zone change in terms of the adopted impact overlay district policy adopted by the metropolitan council; it shall report, in writing, to the metropolitan council the relevant neighborhood and community implications of the proposed zone change, the consistency of the proposed zone change with the impact overlay district policy, and provide its recommendation regarding the proposed zone change; and

2. The metropolitan council shall proceed to consider a proposed zone change in an impact overlay district in accordance with the applicable provisions of this title, except that it shall not adopt a zone change inconsistent with the or without an adopted impact overlay district policy. The adoption of a zoning amendment disapproved by the metropolitan planning commission shall not by itself be construed as acting inconsistent with the adopted impact overlay district policy. (Ord. 96-555 § 10.4(E), 1997)

17.40.160 Neighborhood landmark (NL) district.

The following provisions apply to all Neighborhood Landmark (NL) overlay districts.

A. Application Requirements. An application to establish a NL district shall be submitted by the property owner (or authorized agent) in form and content established by the planning commission, along with all applicable processing fees. The application shall be accompanied by a development plan consisting of scaled drawings, written text, and any reports necessary to demonstrate compliance with the purpose and intent of the NL district, to demonstrate how the proposal will protect the character of the district and neighborhood, and to ensure compatibility with surrounding uses. The application shall detail the following, as applicable:

1. The overall NL district boundary including underlying zoning districts;

2. How the proposed NL district meets the criteria for an NL district as described in Section 17.36.420 of the Zoning Ordinance, to be described in a written statement;

3. The location, orientation, and size of all existing and proposed structures, features and other elements and associated parking spaces;

4. The location of any structures on any property adjacent to the boundaries of the district;

5. The type, location, number, and size of all existing and proposed vegetation and landscaping;

6. The location, width, height, and type of any existing and proposed fence or wall;

7. The number, location, width, height, type and lighting of any existing or proposed sign(s);

8. The location of any accessory structures for refuse collection, recycling, or feature maintenance;

9. The existing and proposed location of any water mains and sewer lines required to serve the property;

10. The location of all existing and proposed access points, loading areas, and drive-thru lanes;

11. The location and name of all existing streets and alleys;

12. The anticipated traffic impacts of the proposed development, as documented in a traffic impact study or access study, if deemed necessary by Metro Public Works;

13. Tabular data identifying the specific existing and proposed uses and square footage; proposed densities; floor area ratios; impervious surface ratios; feature height(s); and parking spaces; and

14. A proposed development schedule.

B. Relationship to Other Requirements. Unless explicitly authorized otherwise by the approved NL District and development plan, all requirements and standards established by other chapters of this title, as a well as any other applicable metro, state or federal regulation, shall apply to the development and use of properties located within a NL district. All development within a NL district shall conform to Chapter 15.64, the "ordinance for storm water management" and the subdivision regulations. In case of conflict between the standards of this article and other chapters of this Zoning Code, the provisions of this article shall control.

C. Permitted Land Uses. All uses classified as a "A", "P" or "PC" by the underlying zoning district(s) shall be permitted within the NL district. Additional uses, including uses prohibited by the underlying zoning district(s), may be permitted subject to certain conditions as described in the development plan, provided they are determined by the planning commission to be compatible with, and sensitive to, abutting properties

and the overall neighborhood fabric and appropriate to preserve and maintain the district, and approved by the metropolitan council.

D. Alternative Design Standards. In addition to permitted uses, the approval of an NL district development plan may establish alternative design standards. A finding must be made that those standards would serve to enhance and provide a strong sense of place, permit the reasonable use of the property, and not impair the continued use and enjoyment of abutting properties in fulfillment of the land use policies of the general plan. Alternative design standards may be approved in lieu of otherwise applicable code provisions to the following provisions of this title.

1. Minimum lot area, maximum building coverage, setback and building height standards of Tables 17.12.020A, 17.12.020B, and 17.12.020C;

2. Street setback standards of Tables 17.12.030A and 17.12.030B provided any new setback does not conflict with any adopted major street plan as contained in the general plan;

3. Landscape buffer yard standards of Chapter 17.24;

4. Parking, loading, and access standards of Chapter 17.20; and

5. Sign regulations of Chapter 17.32.

E. Design Standards. To ensure compatibility of a NL district with surrounding uses and streetscape, the NL District development plan should adequately address the following design elements at a minimum:

1. Building Mass and Scale. The mass and scale of any new construction or alterations to a feature shall be consistent with the principal features, if any, on-site and in relation to existing and surrounding uses, buildings, structures, and streetscape.

2. Parking. The number of any required parking spaces shall be established recognizing any available on-street and alternative parking available in the area. New parking spaces shall be located so as not to disrupt the continuity of the existing neighborhood context, building rhythm, and streetscape. New parking spaces shall be located to the side and rear of the feature to the extent possible.

3. Lighting. Lighting shall be designed and located at a pedestrian scale consistent with pedestrian movements and the neighborhood. Lighting shall be concealed or shielded to avoid glare and off-site impacts on abutting properties. Lighting poles and fixtures shall be compatible with the function and design of the feature and abutting properties.

4. Signs. Any sign, where permitted as part of the development plan, shall be consistent with the context, scale, and character of the neighborhood and streetscape. The mass and scale of the feature and the neighborhood context shall be considered in any sign size and design to ensure appropriate sign proportions and sensitivity to surrounding properties.

5. Landscaping. Landscaping shall enhance and reinforce the distinguishing characteristics of the feature and appropriately buffer development within the district from adjacent properties.

F. Staff Recommendation. The staff of the planning commission shall review all applications to establish an NL district or amend an existing district and submit a written report to the planning commission to serve as a basis for action. The report shall adequately describe the location, nature, and scope of the proposed neighborhood landmark development plan, and the manner in which the plan demonstrates conformance with the development and performance standards of Chapter 17.36, Article XI and other applicable provisions of this title.

G. Metro Historic Zoning Commission Action. Any feature located within an historic overlay district, listed on the national register of historic places, or eligible for the national register of historic places, shall first be referred to and reviewed by the metropolitan historic zoning commission. The commission shall provide a written recommendation to the planning commission on any alterations proposed to the feature which would be subject to any applicable historical design review guidelines.

H. Planning Commission Action. The planning commission shall act to provide a recommendation on the application according to the procedures of Article III of this chapter (Amendments to the Official Zoning Map).

1. Findings for approval. In recommending approval of a neighborhood landmark district, the planning commission shall find that:

a. The feature is a critical component of the neighborhood context and structure;

b. Retention of the feature is necessary to preserve and enhance the character of the neighborhood;

c. Adaptive reuse, as described in the development plan, will facilitate protection and preservation of the identified feature;

d. The proposed use(s) in the development plan is compatible with and sensitive to abutting properties and the overall neighborhood fabric and appropriate to preserve and maintain the district; and

e. All other provisions of Chapter 17.36, Article XI; Section 17.40.160, and this title have been satisfied.

Absent a finding that the proposed feature meets all of the criteria for consideration, the planning commission shall recommend disapproval.

2. Conditions. The planning commission may recommend approval of a NL district and development plan subject to conditions. Conditions shall be adopted that serve to minimize or mitigate potential impacts of a proposed use or development on the neighborhood character and abutting properties, protect the continuity of the existing building rhythm and streetscape in the neighborhood, enhance the pedestrian realm, and/or to otherwise achieve the purpose and intent of the NL district as described in Chapter 36, Article XI of this title.

I. Council Consideration. The metropolitan council shall consider an ordinance establishing a NL district and its associated development plan according to the procedures of Article III of this chapter (Amendments to the Official Zoning Map).

J. Development Permits. All zoning, building and other land development permits shall only be issued in conformance with the provisions of the approved NL District development plan. For previously approved NL Districts that do not have an approved development plan and approved uses in place, no zoning permits, building permits or other land development permit of any kind that would alter the character of the district shall be issued within a NL district prior to approval of a neighborhood landmark development plan according to the procedures of this article and chapter. This provision shall not be intended to prevent the issuance of any permit necessary to stabilize any condition of imminent danger to life safety.

K. Changes to a Neighborhood Landmark District. Applications to modify a NL District and/or its associated development plan in whole or in part shall be filed with the planning department, and shall be submitted in accordance with the requirements of Section 17.40.160.A of this title. The planning executive director may waive specific application details or requirements as appropriate based on the type of modification proposed.

1. Amendments. The following types of changes shall be considered amendments to an NL district and require concurrence by the metropolitan council according to the provisions of Subsection I of this section:

a. Expansion or modification of the boundary of an existing NL district; and

b. Change in the use(s) or addition of new use(s) for an existing NL district with an approved development plan.

2. Existing NL Districts without an approved development plan. Submittal of a development plan to establish permitted uses for an existing NL district that lacks an approved development plan shall be considered an amendment to the district and shall require concurrence by the metropolitan council.

3. Revisions. All other modifications to an approved NL District and the associated development plan shall be considered revisions subject to the planning commission's review and action as set forth in this section.

4. Minor modifications. The planning executive director shall have the authority to grant minor modifications to an approved NL District development plan that do not exceed 10% of any square footage limitation, building setback, lot coverage, landscaping requirement, parking requirement, or dimensional requirement relating to fences or walls. At the planning executive director's discretion, any minor modification may be referred to the planning commission for consideration in accordance with this section.

L. Removal of Feature. If the feature identified as a neighborhood landmark is removed or destroyed, only those uses permitted by the base zoning district shall be permitted. Uses approved for the NL district beyond those permitted by the base zoning shall no longer be permitted.

M. Cancellation. In the event a building permit and/or certificate of use and occupancy has not been issued for a feature within two years from and after the effective date of the Council ordinance establishing the NL district and approving the associated development plan, the metropolitan council, the planning commission, or a property owner within the NL district may initiate cancellation of the district. An NL district shall be cancelled by ordinance according to the provisions of Article III of this chapter. (Ord. BL2018-1317 § 1, 2018; Amdts. 1, 2 with Ord. BL2000-365, Exh. A (part), 2000)

Article V. Site Plan Review and Approval

17.40.165 Applicability.

Prior to the issuance of a zoning permit for new construction, the property owner shall demonstrate compliance with all applicable provisions of this title. (Ord. 96-555 § 10.5(A), 1997)

17.40.170 Final site plan.

The construction of any permanent structure shall be in conformance with a final site plan approved in accordance with the following procedures.

A. Final Approval by the Zoning Administrator. Prior to approval, the zoning administrator shall review final site plan applications in all zoning districts except those cited in subsection B of this section to verify conformance with the provisions of this title and any other applicable regulation. Final site plan applications shall be submitted in form and content established by the zoning administrator, and shall specifically describe

the nature and scope of development to serve as the basis for the issuance of permits by the department of codes administration and any other applicable metro department.

B. Final Approval by the Planning Commission. Planning Commission approval shall be required for a final site plan within a SP district, landmark sign designation or within the overlay districts known as planned unit development (PUD), urban design, and institutional.

1. Application for Final Approval. A final site plan application filed with the planning commission shall consist of a detailed set of construction plans that fully demonstrate compliance with all applicable provisions of this title and accurately represent the resulting form of construction. Applications shall include all necessary drawings, specifications, studies or reports as required by a submittal checklist adopted by the planning commission.

2. Final Report. A written report from the staff of the planning commission shall be submitted to the commission prior to consideration of a final site plan. The report shall adequately describe the location, nature and scope of the final site plan, and its conformance with applicable codes and regulations.

3. Bases for Final Site Plan Approval. Approval of a final site plan shall be based on demonstrated compliance with all applicable provisions of this title. For property located within a planned unit development (PUD) district, the final site plan shall conform to the general development concept and approval provisions of the master development plan.

4. Planning Commission Action. The planning commission shall act to approve, conditionally approve or disapprove a final site plan application.

5. Permits and Certificates. Upon satisfaction of all conditions of approval, an approved final site plan shall be forwarded by the planning commission to the zoning administrator to form the basis for zoning permits. No zoning permit shall be issued prior to approval of the final site plan by the planning commission, nor shall a certificate of zoning compliance be issued unless all construction is in compliance with the final site development plan approved by the planning commission.

6. If the approved site plan for landmark sign designation has not been fulfilled six months after designation is granted, the designation shall be removed. The applicant may reapply for designation.

C. Final Approval by the Planning Department. Planning department approval shall be required for a final site plan within the DTC zoning district.

1. Application for Final Approval. A final site plan application filed with the planning department shall consist of a detailed set of construction plans that fully demonstrate compliance with all applicable provisions of this title and accurately represent the resulting form of construction. Applications shall include all necessary drawings, specifications, studies or reports as required by a submittal checklist adopted by the planning department.

2. Basis for Final Site Plan Approval. Approval of a final site plan shall be based on demonstrated compliance with all applicable provisions of this title and shall also be subject to review and approval by the Nashville Department of Transportation and Multimodal Infrastructure based on demonstrable compliance with all applicable provisions.

3. Planning Department Action. The planning department shall act to approve, conditionally approve or disapprove a final site plan application.

4. Overlapping Requirements. If a final site plan is also required by Section 17.40.170.B, the procedures within this section shall control.

D. Development Under a Unified Plat of Subdivision. Applicants seeking design flexibility may use a unified plat of subdivision to identify and delineate the boundary of all properties to be considered as one "unified" piece of property for purposes of complying with certain floor area ratio (FAR), impervious surface ratio (ISR), landscaping, parking, sign, and street setback standards. Such plat shall be reviewed and approved by the planning commission via the Subdivision Regulations final plat procedures. Once the unified plat is approved and recorded by the planning commission, a final site plan can be approved. Properties eligible for a unified plat are those located in any zoning district (except R/R-A and RS/RS-A) or within a planned unit development, institutional, or urban design overlay district. The zoning administrator and/or the planning commission may authorize the following design flexibility on the final site plan, provided that all standards of this title are satisfied within the boundary of the unified plat of subdivision as approved by the planning commission, and suitably noted both on the final site plan and the recorded unified plat."

1. A permanent on-premises sign may be located on a different lot subject to the number, size and spacing standards of Chapter 17.32.

2. The parking requirements of Chapter 17.20, Article II may be satisfied on a different lot than that containing the principal use or through a shared parking arrangement.

3. The perimeter parking lot landscaping standards of Section 17.24.150B may be waived along internal lot lines.

4. The overall area of impervious surface (ISR) permitted within the unified plat of subdivision may be redistributed among the lots of that plat provided that the department of public works determines that each final site plan conforms to the requirements of Chapter 15.64, "An Ordinance for Storm Water Management."

5. The zoning administrator and/or planning commission may vary the street setback standards of Tables 17.12.030A and 17.12.030B if deemed appropriate to maintain the existing character of a developed area.

6. The overall floor area ratio (FAR) permitted within a unified plat of subdivision may be redistributed among the lots of that plat. (Ord. BL2022-1472 § 2, 2022; Ord. BL2015-1153 § 16, 2015; Ord. BL2015-1053 §§ 3, 4, 2015; Ord. BL2011-922 § 3, 2011; Ord. BL2009-586 § 1(Exh. A, §§ 46, 47), 2010; Ord. BL2007-36 § 2, 2007; Ord. BL2005-762 §§ 7, 8, 2005; Ord. BL2000-364 § 1 (part), 2000; Ord. 98-1268 § 1(part), 1998; Ord. 96-555 § 10.5(B), 1997)

17.40.175 Notice of final site plan.

A. Prior to the approval of a final site plan or issuance of a zoning permit for new construction, the applicant shall provide written notice to the district council member in whose council district the subject property or properties included in the final site plan is located in if the following characteristics are met:

1. The final site plan includes five or more dwelling units.

2. The property or properties included in the final site plan have maintained the same zoning district for four or more years prior to the application for a final site plan.

3. The property or properties included in the final site plan are located within one thousand feet of a property zoned RS, R, or RM.

4. Final site plans that include properties zoned DTC shall be excluded from this requirement.

B. The written notice shall include the total number of dwelling units proposed. (Ord. BL2025-820 § 1, 2025)

Article VI. Board of Zoning Appeals

17.40.180 Powers.

The metropolitan board of zoning appeals, also referred to as the "board," shall be vested with the following powers.

A. Administrative Appeals. Pursuant to Section 13-7-207(1), Tennessee Code Annotated, the board shall hear and decide appeals from any order, requirement, decision or determination made by the zoning administrator or the urban forester in carrying out the enforcement of this Zoning Code, whereby it is alleged in writing that the zoning administrator or the urban forester is in error or acted arbitrarily.

B. Variances. Pursuant to Section 13-7-207(3), Tennessee Code Annotated, the board shall hear and act upon applications for variances to alleviate hardships created by not being able to comply with this Zoning Code from findings based on the criteria set forth in Section 17.40.370.

C. Special Exception Use Permits. Pursuant to Sections 13-7-206 and 13-7-207(2), Tennessee Code Annotated, the board shall hear and act upon applications for special exception use permits. The board may reconsider a previously approved special exception use at any time for just cause.

D. Changes to Nonconforming Uses or Structures. The board shall determine the appropriateness of proposed changes to nonconforming uses or structures.

E. Right of Entry Upon Land. With just cause, the board may enter upon any land within its jurisdiction to make examinations and surveys and place or remove public notices as required by this Zoning Code.

F. Reasonable Accommodation. The decision of either the zoning administrator, the executive director of the historical commission, or of the historical commission itself, to grant or deny a handicapped or disabled person or a provider of housing for a handicapped or disabled person, a reasonable accommodation shall be reviewable by the board of zoning appeals upon the filing of a notice of appeal with the board of zoning appeals by any person or entity aggrieved by that decision. The notice of appeal must be filed with the board of zoning appeals no more than thirty (30) days after issuance of the zoning administrator's decision. (Ord. BL2008-333 § 2, 2009; Ord. 96-555 § 10.6(A), 1997)

17.40.190 Membership.

The board shall consist of seven members. Board members shall be appointed by the mayor and confirmed by a majority vote of the entire membership of the metropolitan council. No person holding any public office or position in metropolitan government shall be eligible for membership on the board. Board members shall serve without compensation. Members of the board serving on the effective date of the ordinance codified in this title shall serve the remainder of their appointed terms and may be considered for reappointment if eligible. (Ord. 96-555 § 10.6(B), 1997)

17.40.200 Terms of office.

Board members shall each serve for a five-year term, or until their successors are appointed. No member shall

serve more than two consecutive five year terms. Board members may be removed from office by the mayor for continued absence or other just causes. Any member being so removed shall be provided, upon request, a public hearing on the removal decision before the metropolitan council. Vacancies shall be filled for unexpired terms in the manner herein provided for initial appointments. Board members shall annually elect a chair and vice-chair from among their membership. (Ord. 96-555 § 10.6(C), 1997)

17.40.210 Hearing required.

Within sixty days following receipt of an application for a variance or special exception and prior to action, the board shall conduct a public hearing according to the public notice provisions of Article XV of this chapter. (Ord. 96-555 § 10.6(D), 1997)

17.40.220 Assistance.

The board may request the assistance of any department or agency of the metropolitan government regarding any matter under consideration. (Ord. 96-555 § 10.6(E), 1997)

17.40.230 Conflict of interest.

A board member with either a direct or indirect interest in property affected by the consideration of the board shall be disqualified from any participation in the proceedings on that matter. (Ord. 96-555 § 10.6(F), 1997)

17.40.240 Action by the board.

Four board members shall constitute a quorum and concurrence of at least four members shall be necessary to deny or grant any application. In the event that five or more members are present, failure to receive four affirmative votes within thirty days of the hearing shall be deemed a denial. In the event there are only four members present and there are not four affirmative votes, then the application shall be readvertised for the next regular meeting. (Ord. 96-555 § 10.6(G), 1997)

17.40.250 Time limits for permits.

All permits for variances or special exception uses authorized by the board must be obtained within two years from the date of approval. (Ord. 96-555 § 10.6(H), 1997)

17.40.260 Appeal of final site plan action.

A final site plan action by the zoning administrator may be appealed by the applicant to the board of zoning appeals. The approval of a final site plan by the zoning administrator may be appealed to the board of zoning appeals by a nonapplicant within thirty days following commencement of construction as defined by Section 17.04.030(A)(1). (Ord. 96-555 § 10.6(I), 1997)

17.40.270 Conditions.

In granting a variance, special exception permit, hillside exception or change to a nonconforming use or structure, the Board may impose conditions, restrictions or time limits considered necessary to protect surrounding properties and better carry out the general intent of this title. (Ord. 96-555 § 10.6(J), 1997)

17.40.275 Applicant.

An applicant may be an owner, optionee, agent, trustee, lessee, government official or department. (Ord. 98-1268 § 1(part), 1998)

Article VII. Special Exception Uses

17.40.280 Authority.

The metropolitan board of zoning appeals shall hear and decide requests for special exceptions in accordance with the provisions of this Zoning Code. Special exceptions shall be regulated in a manner consistent with Section 13-7-206, Tennessee Code Annotated. The specific location of an asphalt plant, waste transfer facility, airport runway, hazardous operation and wastewater treatment facility shall first be approved by a resolution adopted by the metropolitan council prior to the public hearing by the board of zoning appeals. If the metropolitan council does not approve or disapprove the specific location, upon finding that the proposed use is consistent or not consistent with the conditions specified in Chapter 17.16, Article III, within sixty days of the date of notification by the zoning administrator to the council and the district councilmember that such an application has been filed, council approval shall be waived and the board of zoning appeals may proceed to consider the application. (Ord. BL2018-1122 § 1, 2018; Ord. BL2017-799 § 6, 2017; Ord. BL2005-701 § 3, 2005; Ord. BL2000-172 § 1, 2000; Ord. 96-555 § 10.7(A), 1997)

17.40.290 Applications.

Special exception applications shall be filed by the applicant in form and content established by the board of zoning appeals. The application shall contain sufficient information to demonstrate full compliance with all applicable standards of Chapter 17.16, Article III (Special Exception Uses). Within three business days from the date the application for a special exception is filed, the zoning administrator shall notify the district councilmember in writing as to the substance of the request, whether construction on the property necessitat-

ing the special exception has commenced, and whether the property owner has been cited for a violation of the Zoning Code which led to the filing of the application. (Ord. BL2005-910 § 1, 2006; Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 10.7(B), 1997)

17.40.300 Planning commission report.

Special exception uses that would otherwise require final site plan approval by the planning commission pursuant to Section 17.40.170B may be considered and approved by the board upon consideration of a recommendation from the planning commission. All other special exception use applications shall be transmitted from the board of zoning appeals to the planning department for review and a report. Upon receipt of a complete application from the board, the planning department shall review the application and report to the board following a twenty-eight-day review period. In its review, the planning department shall advise on the nature of existing and future land uses in the general vicinity of the proposed special exception use. (Ord. 96-555 § 10.7(C), 1997)

17.40.310 Public hearing required.

Within sixty days following the filing of a complete application, the board of zoning appeals shall hold a public hearing pursuant to the procedures of Article XV of this chapter (Public Notification). For special exception uses requiring review and a report from the planning department, the public hearing shall be held after receipt of the planning department report. If desired, the board may request an official interpretation of the general plan from the planning commission. Testimony and evidence material to the general and specific standards of Chapter 17.16, Article III may be considered by the board in its deliberations. (§ 4(5) of Amdt. 1 with Ord. 96-555 § 10.7(D), 1997)

17.40.320 Findings of fact.

An approval of a special exception land use by the board of zoning appeals shall state the section of this title under which the permit was considered, and findings of facts relating to the applicable approval standards. In the case of a denial, the findings shall specifically identify the standards not satisfied. (Ord. 96-555 § 10.7(E), 1997)

Article VIII. Variances

17.40.330 Authority.

The metropolitan board of zoning appeals may grant variances from the strict application of the provisions of this Zoning Code based upon findings of fact related to the standards in this article. (Ord. 96-555 § 10.8(A), 1997)

17.40.340 Limits to jurisdiction.

A. The board shall not grant variances to the following sections and tables:

Sections/Tables

Section 17.08.030 (land uses)

Tables 17.12.020 A—D (minimum lot area)

Tables 17.12.020 A—D (density)

Tables 17.12.020 A—D (floor area ratio [FAR])

Section 17.12.080 (compact development)

Section 17.12.090 (conservation development)

Section 17.16.030.F (adaptive residential use)

Section 17.16.070.U (Operating a not owner-occupied short term rental property without a permit)

Section 17.16.250.E (Operating an owner-occupied short term rental property without a permit)

Section 17.36.070.C (PUD minimum lot size)

Section 17.37 (Downtown Code (DTC))

B. The board shall not grant variances within the following sections, tables, zoning districts, or overlay districts without first considering a recommendation from the planning commission.

Sections/Tables

Section 17.20.120 (Provision of sidewalks)

Section 17.24.075 (Plans for street trees and streetscape)

Section 17.28.103 (Underground utilities)

Zoning Districts

RN1, RN2

RL1, RL2, RL3

SP District

Overlay Districts

PUD

UDO

Institutional

C. The board shall not grant variances within the following sections, tables, zoning districts, or overlay districts without first considering a supplemental review by the Planning Commission and the Director of the Information Technology Services (ITS) Department or his designee, including an approved consultant.

Sections/Tables

Section 17.16.080.C (Telecommunication facility)

(Ord. BL2025-1005 § 1(Exh. A), 2025; Ord. BL2023-120 § 3, 2024; Ord. BL2022-1121 § 12, 2022; Ord. BL2021-868 § 2, 2021; Amdt. 1 to Ord. BL2021-796 § 6, 2021; Ord. BL2021-796 § 6, 2021; Ord. BL2021-619 § 2, 2021; Ord. BL2019-6 § 3, 2019; Ord. BL2016-493 § 3, 2017; Ord. BL2016-415 § 7, 2016; Ord.

BL2009-586 § 1(Exh. A, § 48), 2010; Ord. BL2005-762 § 9, 2005; Ord. BL2005-628 § 4, 2005; Ord. BL2004-492 § 5, 2005; Ord. 96-555 § 10.8(B), 1997)

17.40.350 Applications.

A written application for a variance shall be filed with the board by the landowner or agent on forms provided by the board. An applicant shall state why the variance is being requested, what function the variance would accomplish and what specific and unique circumstances exist that would authorize consideration by the board under the review standards of this article. The application shall contain site plan information as required for a zoning permit. Within three business days from the date the application for a variance is filed, the zoning administrator shall notify the district councilmember in writing as to the substance of the request, whether construction on the property necessitating the variance has commenced, and whether the property owner has been cited for a violation of the Zoning Code which led to the filing of the application. (Ord. BL2005-910 § 1, 2006; Ord. 96-555 § 10.8(C), 1997)

17.40.360 Hearing required.

Not more than sixty days after filing, the board of zoning appeals shall hold a public hearing on an application for a variance. Notice of such public hearing shall be given pursuant to Article XV of this chapter. Testimony and evidence material to the review standards or requirements of Sections 17.40.370 or 17.40.380 may be considered by the board in its deliberations. (§ 4(6) of Amdt. 1 with Ord. 96-555 § 10.8(D), 1997)

17.40.370 Review standards.

In accordance with Tennessee Code Annotated Section 13-7-207, the board shall not grant a variance without an affirmative finding of fact on each of the following standards based on evidence presented by the applicant.

A. Physical Characteristics of the Property. The exceptional narrowness, shallowness or shape of a specific piece of property, exceptional topographic condition, or other extraordinary and exceptional condition of such property would result in peculiar and exceptional practical difficulties to, or exceptional or undue hardship upon the owner of such property upon the strict application of any regulation enacted by the ordinance codified in this title.

B. Unique Characteristics. The specific conditions cited are unique to the subject property and generally not prevalent to other properties in the general area.

C. Hardship Not Self-Imposed. The alleged difficulty or hardship has not been created by the previous actions of any person having an interest in the property after the effective date of the ordinance codified in this title.

D. Financial Gain Not Only Basis. Financial gain is not the sole basis for granting the variance.

E. No Injury to Neighboring Property. The granting of the variance will not be injurious to other property or improvements in the area, impair an adequate supply of light and air to adjacent property, or substantially diminish or impair property values within the area.

F. No Harm to Public Welfare. The granting of the variance will not be detrimental to the public welfare and will not substantially impair the intent and purpose of this Zoning Code.

G. Integrity of Master Development Plan. The granting of the variance will not compromise the design integrity or functional operation of activities or facilities within an approved planned unit development. (Ord. 96-555 § 10.8(E), 1997)

17.40.380 Special hillside exception.

Requests for exceptions from the hillside development standards of Chapter 17.28 shall be administered and decided in conformance with the requirements of this article. The board shall have no authority to vary lot areas within platted residential developments utilizing compact or conservation development provisions of Chapter 17.12.

A. Application Requirements. At a minimum, an application requesting a variance from the hillside development standards shall include the following information:

1. A report, prepared and endorsed by a qualified professional engineer licensed in the State of Tennessee, that includes at a minimum the following information:

a. A report on the soils, geology and hydrology characteristics of the site;

b. Recommended grading procedures; and

c. Recommended measures to mitigate potential geologic or hydrologic impacts on the proposed development and any potentially affected adjacent property.

2. An engineering report prepared by a qualified professional engineer registered in the State of Tennessee that demonstrates conclusively that:

a. Proposed construction methods will improve or at a minimum not adversely impact the natural stability of the slope;

b. Construction techniques are being employed that will minimize disruption of the existing topography and vegetation; and

c. Existing geological constraints of the site, including soils and hydrology, are adequately addressed in the design of the project.

B. Standards for Granting the Exception. Before granting an exception, the board of zoning appeals shall find that the written petition conforms to the application requirements of this article and that the preponderance of evidence shows that hillside development is appropriate. (Ord. BL2023-120 § 4, 2024; Ord. BL2022-1121 § 13, 2022; Ord. 96-555 § 10.8(F), 1997)

17.40.390 Findings of fact.

Any board decision on a variance or hillside exception shall indicate the section of this Zoning Code under which the variance or exception is being considered and include substantive findings of fact relating to the specified review standards. In the approval of a variance or exception, findings shall specifically identify the unique characteristics of the property and the precise nature of the hardship. In the denial of a variance or exception request, findings shall specifically identify the standards that were not met. (Ord. 96-555 § 10.8(G), 1997)

Article IX. Historic Zoning Commission

17.40.400 Membership.

The historic zoning commission is established by this code.

A. The commission shall consist of nine members who are residents of Davidson County with a composition as follows:

1. One registered architect;

2. One member of the Metropolitan Planning Commission;

3. One member representing the Metropolitan Historical Commission of Nashville;

4. Four members selected from the community, two of whom shall reside within an historic overlay district; and,

5. Two members, each of whom must be one of the following:

a. A property owner of real property lying within the area to which the Downtown Code applies where such property is either listed in the National Register of Historic Places or is within an historic overlay district; or

b. A person whose principal place of business is located on real property lying within the area to which the Downtown Code applies where such property is either listed in the National Register of Historic Places or is within an historic overlay district; or

c. A person having a business interest in real property lying within the area to which the Downtown Code applies where such property is either listed in the National Register of Historic Places or is within an historic overlay district.

B. Members shall be appointed by the mayor and confirmed by the metropolitan council, serving five-year terms without compensation. Those members serving on the effective date of the ordinance codified in this title shall serve the remainder of their appointed terms and may be considered for reappointment if eligible. A member may be removed for just cause by the council following a public hearing. The mayor may appoint a replacement for the remainder of the term subject to council concurrence. The historic zoning commission shall elect from its members its own chairperson and other officers deemed appropriate to carry out its purpose. The commission shall adopt rules of order and establish regular meeting dates. At least five members of the commission shall constitute a quorum for the transaction of its business. The concurring vote of four members of the commission shall constitute final action of the commission on any matter before it. (Ord. BL2012-280 § 1, 2012; Amdt. 1 to Ord. BL2012-181 § 1, 2012; Ord. BL2012-181 § 1, 2012; Ord. 96-555 § 10.9(A), 1997)

17.40.410 Powers and duties.

A. Creation of Historic Overlay Districts. The historic zoning commission shall review applications calling for the designation of historic overlay districts according to the standards contained in Chapter 17.36, Article III, referring written recommendations to the metropolitan council. Establishment of an historic overlay district on the official zoning map shall be in accordance with Section 18.02 of the Metropolitan Charter and Article III of this chapter.

B. Establishment of Design Review Guidelines. The historic zoning commission shall adopt design guidelines for each historic overlay district and apply those guidelines when considering preservation permit applications. Design guidelines relating to the construction, alteration, addition and repair to, and relocation and demolition of structures and other improvements shall be consistent with the National Historic Preservation Act of 1966, as amended. A public hearing following the applicable public notice requirements of Article XV of this chapter shall precede the adoption of all design review guidelines by the historic zoning commission. Testimony and evidence material to the type of historic overlay under consideration may be considered by the commission in its deliberations.

C. Design and Demolition Review. The historic zoning commission shall make the following determinations with respect to historic overlay districts:

1. The appropriateness of the exterior architectural design and features of, and appurtenances related to, any new structure or improvement;

2. The appropriateness of the exterior architectural design and features of any addition to the existing structure;

3. The appropriateness of exterior alterations and repairs to an existing structure;

4. The appropriateness of relocating any building out of, into, or within the boundaries of an historic overlay district; and

5. The appropriateness of the maximum size of buildings and structures on a lot and the buildable area within which a building can be located, including setbacks and height; and

6. The appropriateness of demolishing any structure or other improvement. As a condition of any permission to demolish a structure or other improvement, the historic zoning commission may require historical documentation in the manner of interior and exterior photographs, architectural measured drawings of the exterior, or other notations of architectural features, all at the expense of the commission;

7. The historic zoning commission may take into consideration the historical or architectural significance of the subject structure or improvement; and the impact of the proposed undertaking on the historic character and integrity of the district as a whole.

D. Historic Property Review Board. The historic zoning commission shall carry the responsibilities and perform the duties of the historic property review board as established in T.C.A. § 67-5-218.

E. Right of Entry Upon Land. In performance of its duties, the commission and its staff may access the grounds of any land within its jurisdiction to make examinations and surveys or post public notices as required by this Zoning Code; however, this code does not empower right of entry into a building without the consent of the owner.

F. Use of Land. The use of property located within an historic overlay district shall be governed solely by the associated base zoning district or an approved PUD master development plan.

G. Compliance with T.C.A. § 7-51-1201 et seq. For the purposes of complying with T.C.A. § 7-51-1201 et seq., the historic zoning commission shall make the determination of whether a structure for which a demolition permit has been applied for meets the criteria of T.C.A. § 7-51-1201. If the historic zoning commission determines that the structure at issue meets the criteria of T.C.A. § 7-51-1201, it shall initiate legislation to allow the Metropolitan Council the opportunity to approve or disapprove the demolition in accordance with T.C.A. § 7-51-1201 et seq. (Ord. BL2019-3 § 2, 2021; Ord. BL2007-45 § 1, 2008; Ord. BL2005-864 § 1, 2006; § 4(7) of Amdt. 1 with Ord. 96-555 § 10.9(B), 1997)

17.40.420 Preservation permit.

A. Permit Required. Any person undertaking any action for or with respect to any structure located within any of the historic overlay districts listed in [Section] 17.36.110 shall first obtain a preservation permit from the historic zoning commission. No person may undertake any action for or with respect to any structure located within any of the historic overlay districts listed in [Section] 17.36.110 without first obtaining a preservation permit. These actions include exterior alteration, repair, relocation, demolition in whole or in part, or new construction. In the case of Historic Landmark Interior (HI) designations, these actions include interior renovations, alterations, repairs, or demolition in whole or in part. The design and demolition review of the historic zoning commission shall be memorialized in the preservation permit. The preservation permit must be followed from commencement through completion of the work.

B. Consideration of Applications. The historic zoning commission shall meet within fifteen working days after receipt of an application for a preservation permit that includes sufficient data for review. Failure of the commission to act within thirty days after receipt of a sufficient application shall be deemed an approval except when a mutual agreement has been made to extend the time limit. The commission may conduct a public hearing prior to final action on any application.

C. Preservation Permit. Upon approval of an application, the historic zoning commission shall issue a preservation permit to the applicant and transmit a copy to the zoning administrator. A certificate of zoning compliance shall be issued only if work is in conformance with the preservation permit.

D. Disapproval by the Historic Zoning Commission. With the disapproval of an application, the historic zoning commission shall state in writing to the applicant the bases for that action in terms of the applicable design guidelines. The notice of disapproval may also be transmitted to the zoning administrator.

E. Determination of Economic Hardship. In reviewing an application to remove an historic structure, the historic zoning commission may consider economic hardship based on the following information:

1. An estimated cost of demolition and any other proposed redevelopment as compared to the estimated cost of compliance with the determinations of the historic zoning commission;

2. A report from a licensed engineer or architect with experience in rehabilitation as to the structural soundness of the subject structure or improvement and its suitability for rehabilitation;

3. The estimated market value of the property in its current condition; its estimated market value after the proposed undertaking; and its estimated value after compliance with the determinations of the historic zoning commission.

4. An estimate from an architect, developer, real estate consultant, appraiser, or other real estate professional experienced in rehabilitation as to the economic feasibility of rehabilitation or reuse of the existing structure.

5. Amount paid for the property, the date of purchase, and the party from whom purchased, including a description of the relationship, if any, between the owner of record or applicant and the person from whom the property was purchased, and any terms of financing between the seller and buyer.

6. If the property is income-producing, the annual gross income from the property for the previous two years; itemized operating and maintenance expenses for the previous two years; and depreciation deduction and annual cash flow before and after debt service, if any, during the same period.

7. Any other information considered necessary by the commission to a determination as to whether the property does yield or may yield a reasonable return to the owners.

8. Hardship Not Self-Imposed. The alleged difficulty or hardship has not been created by the previous actions or inactions of any person having an interest in the property after the effective date of the ordinance codified in this title. (Ord. BL2018-1418 § 1, 2019; Ord. BL2012-88, § 1, 2012; Ord. 96-555 § 10.9(C), 1997)

17.40.430 Moratorium for proposed historic overlay districts.

There shall be a moratorium period on the granting of permits for demolition, relocation, new construction, exterior alterations, additions to structures or improvements on land recommended for designation as a historic overlay district. The moratorium period shall begin with the filing of an ordinance to designate an historic overlay district and end once the ordinance establishing the overlay district has been approved, rejected, withdrawn, deferred for a total amount of time equaling ninety days, or indefinitely deferred by the metropolitan council. (Ord. BL2021-842 § 3, 2021; Ord. 96-555 § 10.9(D), 1997)

Article X. Tree Protection and Replacement Procedures

17.40.440 General.

Unless exempt from the provisions of this chapter, no person shall remove or in any way damage any retained, protected or heritage tree without first obtaining a permit from the zoning administrator. Any tree which is damaged, destroyed or removed without the required tree permit shall be repaired according to accepted International Society of Arboriculture practices, or replaced with the equivalent density units of replacement trees as provided in Chapters 17.24 and 17.28. (Ord. BL2022-1122 § 13, 2022; Ord. BL2018-1416 § 13, 2019; Ord. 96-555 § 10.10(A), 1997)

17.40.450 Reserved.

Editor's note—Ord. BL2022-1122 § 14, passed May 17, 2022, repealed § 17.40.450, which pertained to designation of tree types and derived from Ord. 96-555 § 10.10(B), 1997; Ord. BL2018-1416 § 14, 2019. The user's attention is directed to § 17.28.065.

17.40.460 General exemptions.

The following uses or activities shall be exempt from the tree removal requirements of this article.

A. Commercial Growers. All commercial nurseries, botanical gardens, tree farms and grove operations shall be exempt from the provisions of this article, but only as to those trees and sites which were planted or managed for silvicultural or agricultural purposes or for the sale or intended sale in the ordinary course of business.

B. Surveyors and Engineers. A Tennessee-licensed land surveyor or engineer in the performance of duties, provided such alteration or removal is limited to a swath of three feet or less in width and does not include any historic or specimen trees. (Ord. 96-555 § 10.10(C), 1997)

17.40.470 Tree removal permit procedures.

The application procedures and standards for review of tree removal permit applications shall be as follows:

A. Application Requirements. Any person desiring a tree removal permit, including any person or entity engaged in the business of tree removal services on commercial property, shall make written application to the zoning administrator upon forms provided by the zoning administrator along with the following information:

1. The application shall include the name, address and telephone number of the landowner and/or agent.

2. Except for development approved pursuant to Section 17.12.090 Conservation Development each application for a tree removal permit shall be accompanied

by a tree survey based upon current information. An application for a tree removal permit for a Conservation Development approved pursuant to Section 17.12.090 shall submit a tree survey for any trees located outside of the natural areas required to be preserved in open space. The survey shall show the location, size and type of retained, protected and heritage trees upon the site, including common or scientific names. The survey shall indicate which retained, protected and heritage trees are intended for removal and/or grubbing and which will be left undisturbed. A final site plan prepared to the same scale shall be submitted which illustrates the following:

a. The locations of existing and proposed buildings, layout of roads, utilities, parking areas for vehicles, storage areas for construction materials, and other items that disturb or compact the soil in tree root zones.

b. Existing and proposed grades and subsequent erosion control measures to prevent siltation over the roots of protected and heritage trees and appropriate tree protection fencing for those trees.

c. For a conservation development approved pursuant to Section 17.12.090 survey plans shall locate and label all natural areas to be preserved and show and label the limits of disturbance.

d. For a conservation development approved pursuant to Section 17.12.090, the site analysis plan shall be included with the submittal.

3. Each application for a tree removal permit shall include a plan for disposal of the tree.

4. The application and accompanying documents shall be submitted in copies sufficient to administer this article.

5. The filing of an application shall be deemed to extend permission to the urban forester to inspect the subject site if necessary for purpose of evaluating the application.

6. Tree permits allowing for pruning or removal of trees necessitated by the installation and/or on-going maintenance of public utilities and communications facilities may be issued by the urban forester to public utilities and communications facilities for a period of one year and may be renewed annually subject to continued compliance with the conditions of this article.

B. Tree Removal Permit Review Criteria. No permit for the removal of a retained, protected or heritage tree shall be granted unless the petitioner demonstrates one or more of the following conditions:

1. The site has received development, site plan or subdivision approval.

2. The tree is located in such proximity to an existing structure that the safety, utility or structural integrity of the structure is materially impaired.

3. The tree materially interferes with the installation, servicing or functioning of existing or infrastructure, utility lines or services for which there is no feasible relocation alternative.

4. The tree creates a substantial hazard to motor, bicycle or pedestrian traffic by virtue of physical proximity to traffic or impairment of vision.

5. The tree is diseased, insect ridden or weakened by age, abuse, storm or fire and is likely to cause injury or damage to people, buildings or other improvements.

6. The removal of the tree is necessary to promote the growth of surrounding protected and heritage trees. Under this provision, the applicant must demonstrate a preference for protecting heritage trees. Trees removed pursuant to this subsection are exempt from tree replacement requirements.

7. Any law or regulation requires the removal.

8. The site will maintain the required tree density after the removal of specified trees either with retained trees or with the installation of replacement trees in accordance with Section 17.28.065.C Replacement of Trees.

C. Tree Removal Permit Review Procedures.

1. Applications that involve subdivision review or any form of site plan review before the planning commission, shall be reviewed by the planning commission in accordance with the applicable review procedures.

2. Applications that do not involve final site plan review, but only the issuance of grading or building permits shall be reviewed by the zoning administrator and urban forester in accordance with the review procedures already in effect for the review and approval of such permits.

3. The filing of an application shall be deemed to extend permission to the urban forester to inspect the subject site if necessary for purpose of evaluating the application.

4. Unless otherwise specified, a tree removal permit shall automatically expire and become void if the work authorized by such permit is not commenced within six months after the date of the permit or if, once commenced, removal work is suspended, discontinued, or abandoned for a period equal to or greater than six months.

5. Tree removal authorized by the approval of a final site plan or by approved subdivision construction plans shall remain valid concurrent with the approved plans.

6. Notice of commencement and completion of the work or other activity authorized by the tree permit shall be made by signed affidavit to the urban forester as stated on the permit issued. (Ord. BL2022-1122 § 15, 2022; Ord. BL2022-1121 § 14, 2022; Amdt. 1 to Ord.

BL2018-1416 § 15, 2019; Ord. BL2018-1416 § 15, 2019; Ord. BL2004-371 § 1, 2004; Ord. BL2004-244 § 1, 2004; Ord. 96-555 § 10.10(D), 1997)

17.40.480 Off-site plantings.

In the event that the urban forester determines that: (a) the site is located in the MUI, MUI-NS, CF, CF-NS district, or in any other district that may not provide for adequate required yard space to accommodate the total number of required replacement trees; or (b) the unique soil types, topography and/or unusual nature of the site would not assure growth of trees, the applicant may contribute to the tree bank an amount of money equal to the costs of providing the required density, according to a schedule promulgated by the urban forester and approved by resolution of the council.

The tree bank shall be a fund set up to receive monies from owners or developers who, for various reasons, remain unable to successfully plant and maintain trees on the site under development, with such monies to be used for the planting and maintaining of public trees. This article shall not apply to sites containing surface parking lots in the CF, CF-NS, MUI, MUI-NS districts. (Ord. BL2019-111 § 1(Exh. A, § 51), 2020; Ord. 96-555 § 10.10(E), 1997)

Article XI. Sign Procedures

17.40.490 Permits and compliance tag.

A. Exempt from Permits. No zoning permit or building permit is required for the following:

1. Exempt signs (Chapter 17.32) which are not otherwise regulated by size, height, setback, number or duration of placement; or

2. The painting, repainting or cleaning of a sign structure, or the changing of copy on a sign designed for changeable copy.

B. Permits Required. No sign shall be constructed, installed or altered without first obtaining a zoning permit, a building permit and all other applicable permits. Application shall be made by the owner of the property on which the sign is to be displayed or by the owner's legal representative.

C. Applications. In applying for a zoning permit and a building permit to install a sign, the applicant shall submit the following information:

1. A site plan drawn to appropriate scale depicting the location of the proposed sign and all relevant features of the site, including location and size of other regulated signs; and

2. Drawings and specifications, including elevations depicting the sign faces, dimensions, anchorage, materials and other data necessary to determine compliance with the requirements of this title and with the requirements of the metropolitan building code and the metropolitan electrical code.

D. Compliance Tag. Upon installation of a sign, the installer shall certify to the department of codes administration that the sign was constructed in conformance with all applicable regulations. Upon issuance of a certificate of compliance, a compliance tag provided by the department of codes administration shall be permanently affixed and displayed on the sign. (Ord. 96-555 § 10.11(A), 1997)

17.40.500 Overall signage plan.

A. General Procedures. Prior to issuance of a zoning permit for a permanent on-premises sign, an overall signage plan indicating the general locations, maximum dimensions and structural type of all signs to be located on the lot shall be filed with the zoning administrator. An authorization form for submittal of the overall signage plan shall be signed by all owners of the lot or their authorized agents. In case of conflict between the overall signage plan and any ordinance of the metropolitan government, the ordinance shall apply.

B. Common Signage Plan. When more than one use or business is located on a lot, the overall signage plan for the lot shall be a common signage plan which shall provide for consistency among signs on the premises with regard to at least four of the following: Material; location of each sign on the building; sign proportions; color scheme; lighting; lettering or graphic style. The common signage plan shall establish an allowable area of signage for existing and future tenants with regard both to on-premises building and on-premises ground signs. The common signage plan shall be approved by the zoning administrator prior to issuance of any permits. For a development existing prior to the effective date of the ordinance codified in this chapter, a common signage plan must be submitted and approved if a new sign is to be added to the property. The common signage plan shall indicate existing nonconforming signs as well as the amount and location of on-premises signage to be allocated to each tenant under the new plan. If existing on-premises building signage exceeds an amount permitted by this title, a new or replacement tenant shall be allowed its share of on-premises building signage based on the approved common signage plan.

C. Amending Signage Plans. Any overall signage plan, including a common signage plan, may be amended by filing a new plan which complies with all requirements of this title and includes a schedule for bringing any existing signs not in conformance with the proposed amended plan into compliance.

D. Nonconforming Signs. Signs legally installed after the effective date of the ordinance codified in this chapter and subsequently made nonconforming because of an amendment to an overall or common signage plan shall be brought into compliance with the amended plan within six months. (Ord. 96-555 § 10.11(B), 1997)

17.40.510 Unsafe, illegal, dilapidated and abandoned signs.

A. Unsafe Signs. Should any sign be determined unsafe by the zoning administrator, upon receipt of written notice the sign owner shall: (1) remove the sign forthwith in the case of immediate danger, or otherwise within ten days; or (2) bring the sign into compliance with all provisions of this title within the same period. If such order is not complied with within ten days, in addition to other remedies the zoning administrator may have such sign removed at the expense of the owner.

B. Illegal Signs. Any sign that was illegal under the sign regulations that preceded the ordinance codified in this title shall be illegal after the effective date of the ordinance codified in this title. Any sign which was erected without the required permits shall be deemed a continuing violation and shall not be considered under the provisions regarding nonconforming signs.

1. Signs constructed, erected or altered without a permit as required by this article or by the provisions of prior regulations shall be illegal.

2. An illegal sign and its appurtenances shall be removed in no more than ten days after written notice by the zoning administrator, or brought into compliance with all provisions of this title within the same period. If such order is not complied with within ten days, in addition to other remedies the zoning administrator may have such sign removed at the expense of the owner.

C. Dilapidated Signs. All signs regulated by this title, including the panels constituting the signs, together with all supports, braces, guys and anchors, shall be maintained in good repair, so that all sign panels are affixed in place within the sign cabinet, frame, or similar structure and are complete and intact. In addition to any other available remedies, the zoning administrator may order the removal of any sign that is not maintained in accordance with this code, including the provisions of the metropolitan building code and the metropolitan electric code.

D. Abandoned Signs. The zoning administrator shall notify in writing the owner or lessee of the sign that has been determined to be abandoned. The notice shall contain a removal order giving ten days for compliance. If the sign and its appurtenances are not removed within ten days, in addition to other remedies the zoning administrator may have the sign removed at the expense of the owner. (Ord. BL2023-1858 § 2, 2023; Ord. 96-555 § 10.11(C), 1997)

Article XII. Permits and Certificates of Compliance

17.40.520 Applicability.

An application for a zoning permit must be filed with the zoning administrator prior to any person or entity commencing any construction or alteration of a structure, initiating a change in the use of the property or for a telecommunication facility, including collocation. No building permit shall be issued except upon presentation of a valid zoning permit. However, an application for a telecommunications facility building permit for routine maintenance or for like-for-like replacements of equipment, consistent with departmental regulations, shall be submitted within ten days of such work being performed and include verification that the work performed was for routine maintenance or for like-for-like replacements of equipment, consistent with departmental regulations. If an applicant contends that they are exempt from this permitting requirement by virtue of TCA Section 13.24.305 due to the fact that they are placing an antenna or related equipment for an existing wireless telecommunications support structure, they shall submit documentation evidencing their eligibility for such exemption. (Ord. BL2016-415 § 5, 2016; Ord. 2001-821 § 1, 2001; Ord. 96-555 § 10.12(A), 1997)

17.40.530 Zoning permit application.

The application requirements for a zoning permit shall be established by the zoning administrator in a form and content appropriate to demonstrate that all structures or use of property will be done in compliance with all applicable provisions of this code. No zoning permit shall be issued:

A. Prior to approval of a final site plan by the planning commission for properties requiring the commission's approval under Section 17.40.170 B.

B. For development within a floodplain overlay district prior to approval of a grading and drainage plan by the department of public works;

C. For erection of a structure within the airport overlay district prior to approval by the Metropolitan Nashville Airport Authority;

D. For an adult entertainment establishment unless all locational standards established by Chapter 17.36, Article VII are satisfied;

E. For a special exception use prior to approval by the board of zoning appeals; or

F. For any manufacturing use or other use, where a compliance certification is required pursuant to Section

17.28.103 of this code. (Ord. BL2009-586 § 1(Exh. A, § 49), 2010; Amdt. 1 with Ord. 98-1268 § 1 (part), 1998; Ord. 96-555 § 10.12(B), 1997)

17.40.540 Final site plan authority.

No zoning permit for construction that creates new floor area shall be issued by the zoning administrator prior to the approval of a final site plan and satisfaction of all applicable conditions (if any). If final site plan approval is conditioned upon the provision of public streets or utilities, no zoning permit shall be issued prior to the approval of a plat of dedication by the planning commission and the posting of any associated bonds (if necessary). (Ord. 96-555 § 10.12(C), 1997)

17.40.545 Design-based multi-family design sites authority.

The zoning administrator shall not issue any zoning, building or demolition permit for the construction, alteration, repair, demolition or relocation of a building or other structure within any design site within a design-based multi-family zoning district without prior approval of the planning department. Refer to Section 17.38.010.C - Administration for design sites requirements. (Ord. BL2025-1005 § 1(Exh. A), 2025)

17.40.550 Permits within an historic overlay district.

The zoning administrator shall not issue any zoning, building or demolition permit for the construction, alteration, repair, demolition or relocation of a building or other structure within any historic overlay district, or for the construction, demolition, relocation or additions increasing habitable area of a building or other structure within an NC overlay district, without prior approval of the historic zoning commission. (Ord. BL2021-843 § 3, 2021; Ord. 96-555 § 10.12(D), 1997)

17.40.560 Permits within the floodplain overlay district.

Grading permits for property within the floodplain overlay district shall be in strict accordance with the requirements of Chapter 15.64, "An Ordinance for Storm Water Management" and Chapter 17.28, Article I of this code. Grading permits issued by the department of public works shall be consistent with an approved PUD master development plan (if applicable) and with a final site plan. (Ord. 96-555 § 10.12(E), 1997)

17.40.570 Permits within the airport overlay district.

No zoning permit shall be issued for construction within the airport overlay district prior to review and approval of the application by the Metropolitan Nashville Airport Authority. (Ord. 96-555 § 10.12(F), 1997)

17.40.580 Certificate of compliance.

Following issuance of a zoning permit, no structure or zone lot shall be used or occupied until the zoning administrator has certified in a final inspection that the property is in full compliance with all applicable provisions of this Zoning Code. The certificate of compliance shall be posted within the building in a manner viewable by the public. Issuance of a certificate of compliance shall not be construed as waiving any provision of this Zoning Code. (Ord. 96-555 § 10.12(G), 1997)

Article XIII. Enforcement

17.40.590 Authority.

The zoning administrator is responsible for the enforcement of all provisions of this title and is authorized to stop work that has commenced without obtaining a required zoning permit or is otherwise not in keeping with an approved final site plan or zoning permit. (Ord. 96-555 § 10.13(A), 1997)

17.40.600 Notification.

If the zoning administrator has reason to believe that there is a violation of this title, the owner or the persons or entities determined to be in violation by the zoning administrator shall be notified. If necessary, governmental agencies or independent experts may be retained to perform tests to determine the existence and extent of a violation, with all associated costs assessed to the owner or the persons or entities determined to be in violation by the zoning administrator if a violation is verified.

Whenever the zoning administrator determines that there has been a repeated or continuing violation of the same provision of the zoning code by the same property owner and that the property owner was previously notified of the existence of the zoning violation, and that such notice occurred more than forty-five days in advance of the zoning administrator's determination under this subsection, the zoning administrator may forego additional notifications and immediately institute the appropriate proceeding at law or in equity to restrain, enjoin, correct or abate such zoning violation; provided however, that the foregoing shall not apply if the property owner has an active application with the board of zoning appeals for a variance or special exception directly related to the violation on the property being cited. (Amdt. 1 to Ord. BL2025-949 § 1, 2025; Ord. BL2025-949 § 1, 2025; Ord. 2001-820 §§ 1,2,3 and 4, 2001; Ord. 96-555 § 10.13(B), 1997)

17.40.610 Violations.

Any violation of this title shall be a misdemeanor offense punishable by law. Each day of a violation shall constitute a separate offense. (Ord. 96-555 § 10.13(C), 1997)

17.40.620 Penalties.

Any violation of this title shall be assessed as a civil penalty at the rate of five hundred dollars per day. In addition, the zoning administrator is authorized to impose triple fees for a zoning permit when work has commenced or occupancy occurs without obtaining a required zoning permit. (Ord. 96-555 § 10.13(D), 1997)

17.40.630 Remedies.

The zoning administrator may, in addition to other remedies, institute injunction, mandamus or other appropriate action to correct or abate a violation of this title. Where a violation exists, the zoning administrator may request that utility service be curtailed until the violation is corrected or abated. (Ord. 96-555 § 10.13(E), 1997)

Article XIV. Nonconforming Uses, Structures, Lots and Signs

17.40.640 General.

In order to protect the health, safety and general welfare of the community, land uses and/or structures which existed legally upon the effective date of the ordinance codified in this title, but which are not in conformance with all the applicable provision of this title, shall be subject to the provisions of this article to the fullest extent permitted by the Tennessee Code Annotated.

Nonconforming uses and structures shall be subject to the following limitations and controls in order to protect and preserve the full use and enjoyment of nearby properties. While legally nonconforming uses are generally permitted to continue by this title, further investment in such uses may be limited so as to encourage a relocation of the use to an appropriately zoned area. In the case of a few highly impactive uses, a reasonable period of time is established in which to bring the property into compliance with this title. It is the intent of this title to discourage increases in the existing degree of land use or structural nonconformance.

The following provisions apply to legally nonconforming uses of land, nonconforming improvements to the land, pre-existing lots or parcels of substandard size, uses nonconforming with respect to operational performance standards, and nonconforming signs. These provisions shall be applied in a manner consistent with Tennessee Code Annotated Section 13-7-208. (Ord. 96-555 § 10.14(A), 1997)

17.40.650 Nonconforming uses.

A. Continuing a Legally Nonconforming Use. A nonconforming use may continue subject to the following provisions:

1. Land with Minor Improvements. In all residential districts, a nonconforming use of land with minor improvements shall cease within three years from the date of the ordinance codified in this title.

2. Special Conditions for Scrap Operations. In all districts except IR and IG, nonconforming scrap operations shall conform to the buffering and operational provisions of Chapters 17.24 and 17.28 within three years of the date of the ordinance codified in this title.

B. Inactivity of a Nonconforming Use. When a nonconforming use has been inactive for a period of thirty continuous months, the land and its associated improvements shall thereafter be used only in accordance with the provisions of this title. An intent to resume activity shall not qualify the property for a continuation of the nonconforming use. For the purposes of this subsection, the thirty month period of continuous ceased operation shall be tolled by:

1. The period in which the use of the property is the subject matter of any action in a court of competent jurisdiction until such time that a final settlement, order, decree, or judgment has been rendered. For purposes of this subsection, "use of the property" shall mean a function or operation that constitutes an activity occurring on the property. Other litigation that does not pertain to the issue of use of the property, including but not limited to bankruptcy litigation, marital or estate asset distribution litigation, or a landlord/tenant dispute, shall not operate to toll the thirty month period of continuous ceased operation.

2. The period during which a property was significantly damaged as a result of the severe rain event that occurred on May 1 and May 2, 2010, provided that in no event shall the period of inactivity exceed sixty months from the date of damage in order for the property to maintain status as a protected nonconforming use.

C. Change of Nonconforming Use. A change in land use classification as defined by the district land use table of Chapter 17.08 shall be subject to the following provisions:

1. When a nonconforming use is changed to a conforming use, all nonconforming protections offered by this code are forfeited.

2. On land with minor improvements, a nonconforming use of land may be changed only to a conforming use.

3. In all residential districts, a change in nonconforming use shall be subject to the following provisions:

a. The nonconforming use of a building designed and constructed for residential activities may be changed only to a conforming use.

b. The nonconforming use of a building designed and constructed for nonresidential activities may be changed to another nonconforming use upon a determination by the board of zoning appeals that the new nonconforming use will be more compatible with surrounding land uses than the existing nonconforming use.

4. In all mixed-use and nonresidential districts, an existing nonconforming use may be changed to a new non-conforming use upon a determination by the board of zoning appeals that the new nonconforming use will be more compatible with surrounding land uses than the existing non-conforming use.

D. Alteration of a Structure Containing a Nonconforming Use. For any use not otherwise protected by Tennessee Code Annotated Section 13-7-208 and subsection E. below, alterations other than incidental shall be permitted only though the issuance of a permit by the board of zoning appeals, but the floor area ratio (FAR) of the expanded use together with all other uses on the lot shall not exceed the maximum FAR currently permitted in the base zoning district.

E. Damage or Destruction of a Structure Containing a Nonconforming Use. For uses not otherwise protected by Tennessee Code Annotated Section 13-7-208, damage or destruction of a building or other form of structure (except a sign) occupied or used by a nonconforming use may be restored pursuant to the following provisions:

1. On land with minor improvements, the nonconforming use shall cease upon damage or destruction in the amount of twenty-five percent or more of the assessed valuation of all buildings, structures and other improvements on the property.

2. In a residential district, a nonconforming use shall cease if fifty percent or more of the floor area of the building or structure is damaged or destroyed. When damage if to less than fifty percent of the floor area, the building may be restored within one year of the date of the damage. A structure containing a two-family nonconforming use within an RS and RS-A district many be restored within two years regardless of percentage of damage or destruction.

3. In any non-residential district, any single-family dwelling that is damaged or destroyed may be restored within one year of the date of damage, regardless of the percentage of damage or destruction. The setbacks of the original dwelling shall apply to any reconstructed residential dwelling.

4. Use of Alternate Formula. If requested by the property owner, the board of zoning appeals may substitute percentage of reconstruction cost for percentage floor area damaged. In estimating reconstruction costs, value of the land shall be excluded. Reconstruction cost data shall be provided by the property owner.

5. Nonconforming use structures damaged or destroyed by flood. Notwithstanding the foregoing, a structure containing an industrial, commercial, business, or residential nonconforming use that was destroyed or significantly damaged as a result of the severe rain event that occurred on May 1 and May 2, 2010, may be restored within sixty months from the date of damage, regardless of percentage of damage or destruction. Otherwise, the structure shall be subject to all provisions of this title. (Ord. BL2015-1153 § 16, 2015; Amdt. 1 to Ord. BL2012-92, §§ 1, 2, 2012; Ord. BL2012-92, §§ 1, 2, 2012; Amdts. 1 and 2 to Ord. BL2007-1543 § 1, 2007; Ord. BL2007-1543 § 1, 2007; Amdt. 1 with Ord. BL2005-631 § 1, 2005; Ord. 96-555 § 10.14(B), 1997)

17.40.660 Nonconforming structures.

The following provisions shall apply to all nonconforming structures not otherwise protected by Tennessee Code Annotated Section 13-7-208.

A. Continuation of Use. The use of a nonconforming structure may be continued except as otherwise provided in this article.

B. Repairs and Alterations. Repairs and incidental or structural alterations may be made to a nonconforming structure provided there is no increase in the degree of non-conformity.

C. Enlargements or Conversions. A nonconforming structure may be enlarged or converted to another permitted use, provided there is no increase in the degree of non-conformity.

D. Damage or Destruction of Nonconforming Structures.

1. A nonconforming structure damaged by any involuntary means to less than fifty percent of its total floor area may be reconstructed. If damage exceeds fifty percent of the total floor area, the structure shall be reconstructed in accordance with all applicable provisions of this title. If requested by the property owner, the board of zoning appeals may consider percentage of reconstruction cost in lieu of percentage of floor area damaged or destroyed. The value of land shall be excluded.

2. Notwithstanding the foregoing and regardless of the percentage of floor area damaged or destroyed, any nonconforming structure damaged or destroyed by the March 3, 2020, tornado may be reconstructed so long as there is not a substantial increase in the degree of non-conformity and the building permit is issued on or before March 3, 2025.

3. A nonconforming structure utilized for the single family use or two family use that is damaged or destroyed by any involuntary means may be fully reconstructed so long as there is not a substantial increase in the degree of non-conformity of the structure. (Amdt. 1 to Ord. BL2021-975 § 1, 2021; Ord. BL2021-975 § 1, 2021; Ord. BL2020-277 § 1, 2020; Ord. 96-555 § 10.14(C), 1997)

17.40.670 Nonconforming lot area.

The following provisions shall apply to legally created lots less than the required minimum lot area.

A. Single Family Structures in Residential and Agricultural Districts. Within the R and R-A, RS and RS-A, RM, RM-NS, RM-A, RM-A-NS, AR2a and AG districts, a single-family structure may be constructed on a legally created lot that contains less than the minimum lot area required by Tables 17.12.020A, 17.12.020B, 17.12.020C or 17.12.020D, provided the lot contains a minimum area of three thousand seven hundred fifty square feet and existed prior to the effective date of the ordinance codified in this title. Single Family Structures in R and R-A, RS and RS-A, RM, RM-A districts shall comply with the bulk standards of the district within the same classification of zoning district (R/R-A and RS/RS-A, RM or RM-A) in which the lot area would be conforming. If the application of these bulk standards results in a change in the minimum side setback, then the height of the single family structure shall be limited to 35 feet, including foundation height. Lots less than 5,000 square feet shall build to the 3' side setback for at least 25% of the depth of the structure beginning at the street setback.

B. Two Family Structures in Agricultural Districts. A two-acre or larger lot (or parcel) in the AG district legally created prior to the effective date of the ordinance codified in this title shall be permitted a two-family structure.

C. Industrial Districts. A nonconforming lot in a IWD, IR or IG district that was legally created prior to the effective date of the ordinance codified in this title shall have all development and use opportunities otherwise afforded by this title. (Ord. BL2019-111 § 1(Exh. A, § 52), 2020; Ord. BL2015-1153 § 16, 2015; Ord. BL2013-419 § 1, 2013; Ord. BL2011-898 § 14, 2011; § 1(13) of Amdt. 1 with Ord. 96-555 § 10.14(D), 1997)

17.40.680 Nonconformance to operational performance standards.

The following provisions shall apply to all uses not otherwise protected by Tennessee Code Annotated Section 13-7-208.

A. Conforming Uses. Any otherwise conforming use which is in violation of the operational performance standards of Chapter 17.28 on the effective date of the ordinance codified in this title shall comply with those standards within ten years.

B. Nonconforming Uses. Any nonconforming use which is also in nonconformance with an operational performance standard of Chapter 17.28 on the effective date of the ordinance codified in this title shall comply with the applicable standard within five years from the date of the ordinance codified in this title. (Ord. 96-555 § 10.14(E), 1997)

17.40.690 Nonconforming signs.

The following provisions shall apply to legally permitted signs that were in compliance with all applicable regulations in effect at the time of installation, but are made nonconforming by the adoption of the ordinance codified in this title.

A. Any sign prohibited by Chapter 17.32, including structures, posts, cables, bases to ground level and electrical wiring, shall be completely removed within sixty days of the effective date of the ordinance codified in this title.

B. An existing on-premises sign may remain exempt from full compliance with the provisions of this title provided the sign does not obstruct a "visibility area" as defined by Chapter 17.20, Article III of this code, is maintained in good condition at all times, and is not abandoned. If qualifying for exemption in all other respects, a sign obstructing a visibility area may be raised in its current location to conform with the requirements of Chapter 17.20, Article III and remain exempt. An existing sign obstructing a visibility area in a CS and CS-A or CL and CL-A district is exempted if, without structural modification, the bottom edge of that sign has a minimum vertical ground clearance of eight feet or the front edge of the sign is at least ten feet from the front property line.

C. A sign shall be brought into compliance with the provisions of this title if at any time the sign is altered, repaired, restored or rebuilt to the extent that the cost exceeds fifty percent of the estimated replacement cost of the sign (in current dollar value). If the alteration or repair is caused by involuntary damage or casualty, or is desired by the owner of the business existing on the effective date of the ordinance codified in this title, the

fifty-percent standard will not apply and the sign may be altered or repaired to any extent. All permits within any six consecutive calendar months shall be aggregated for purposes of measuring the fifty percent standard.

D. For single-tenant lots, a nonconforming sign shall be brought into compliance with this title when the principal land use on the lot is changed to a different use as described by the district land use table.

E. For multi-tenant lots, each tenant may replace, alter, repair or restore an associated sign of a size not to exceed fifteen percent of the facade area of the building occupied by the tenant. Use of this provision must be noted on the overall signage plan. (Ord. BL2015-1153 § 15, 2015; Ord. 96-555 § 10.14(F), 1997)

Article XV. Public Notification

17.40.700 Applicability.

All public hearings required by this title shall be preceded by public notice as provided by this article. (Ord. 96-555 § 10.15(A), 1997)

17.40.710 Notice by newspaper.

No council public hearing pertaining to an amendment to the official zoning map or zoning code shall be conducted unless notice has been given in a newspaper of general circulation in Davidson County no less than twenty-one days prior to the public hearing. The notice shall specify the date, time, location and nature of the public hearing. (Amdt. 1 to Ord. BL2015-1100 § 2, 2015; Ord. BL2015-1100 § 2, 2015; Ord. 96-555 § 10.15(B), 1997)

17.40.720 Notice by mail.

A. No public hearing shall be conducted unless, at least twenty-one days prior to the public hearing, the owner(s) of the subject property and all other property owners within one thousand feet of the subject property have been given notice of the time, date and place of the public hearing. Properties owned by the applicant shall not be included in the distance measurement for public notice. For a public hearing conducted by the board of zoning appeals, the appellant shall be notified by certified mail. In addition to notification of individual property owners, an incorporated condominium association registered with the metropolitan clerk as requesting notification shall also be notified. The provisions of this article shall not apply to the adoption or subsequent amendment of this title, or to amendments of the official zoning map involving floodplain or airport overlay districts.

B. For the revision of existing design guidelines for historic overlays, property owners within one hundred and fifty feet shall be provided written notice.

C. The planning department shall have the responsibility for the preparation and mailing of written notices regarding the public hearing for amendments to the official zoning map initiated by a member or members of council that fall within the fee waiver exceptions in Section 17.40.740.C of the Metropolitan Code. The planning department shall also be responsible for all costs associated with the preparation and mailing of such written notices for three zoning applications per councilmember applicant each fiscal year. The planning department shall make reasonable efforts to combine public hearing written notices into one mailing to limit postage costs.

D. 1. For the subject property where the tax records reflect a mailing address that is different than the address of the subject property, then notification shall also be mailed to the address of the property. The following properties shall be exempt from this requirement:

a. Properties included in the application of an Overlay District as listed in Chapter 17.36, excluding Planned Unit Development Overlays.

b. Properties included in an application to rezone ten or more parcels filed by a member of the metropolitan council in their official capacity.

2. If the subject property is designated as multi-family or mobile home park, in the official tax record, one sign shall be posted by the applicant at each ingress/egress onto the multi-tenant property. The signage shall comply with the requirements of subsections 17.40.730.B, 17.40.730.C.3, and 17.40.730.D and must be positioned in a manner to best inform the public residing at the multi-tenant property without creating a safety hazard.

E. Historic Zoning Commission Preservation Permits. No action shall be taken by the historic zoning commission on a preservation permit application under Section 17.40.420 that is subject to commission review as defined in the historic zoning commission rules unless, at least eleven days prior to consideration of the application by the commission, the permit applicant provides written notice by U.S. Mail of the date, time, and place of the commission meeting to all property owners within two hundred fifty feet of the subject property. The applicant shall be responsible for the costs associated with the preparation of the written notices and shall be responsible for the mailing of such written notices. (Amdt. 1 to Ord. BL2021-621 § 1, 2022; Ord. BL2021-621 § 1, 2022; Ord. BL2021-844 § 1, 2021; Ord. BL2019-1637 § 1, 2019; Ord. BL2016-349 § 1, 2016;

Ord. BL2016-218 § 1, 2016; Ord. BL2015-1140 § 1, 2015; Ord. BL2014-715 § 1, 2014; BL2004-121 § 1, 2004; § 3(1) of Amdt. 1 with Ord. 96-555 § 10.15(C), 1997)

17.40.730 Public notice signs.

Public notice signs shall be posted in accordance with the following provisions on any property subject to council consideration of an amendment to the official zoning map, or to the consideration of a variance, hillside exception or a special exception use permit by the board of zoning appeals. Notwithstanding, the following provisions shall not apply to a change in zoning district title or the specific provisions therein upon the adoption or subsequent amendment of this title. Public notice signs shall be posted in accordance with subsection E of this section on any property subject to consideration of certain preservation permit applications under Section 17.40.420 by the historic zoning commission.

A. General Requirements. Public notice signs shall be posted on any property subject to the public hearing provisions of this title. Public notice signs shall be installed by the owner or owner's representative of the property for which the public hearing is required, unless the applicant is a member of the metropolitan council or a department of the metropolitan government. Where the applicant is a member of the metropolitan council or a department of the metropolitan government, then the applicant or the appropriate department of the metropolitan government will be responsible for posting applicable public notice signs.

B. Display Period. Public notice signs shall be installed on affected properties no less than twenty-one days prior to an established public hearing date, and shall be removed promptly by the landowner following closure of the public hearing.

C. Number and Placement of Public Notice Signs. Public notice signs shall be posted according to the following standards:

1. Number. One sign shall be posted along each three hundred feet of public street frontage. In cases involving large area rezonings initiated by the planning commission or the council, greater spacing intervals may be utilized as appropriate.

2. Location. Whenever practical, signs shall be located within ten feet of a public street right-of-way and positioned in a manner to best inform the motoring public without creating a safety hazard.

3. Size and Content. All public notice signs shall be of adequate size and design to be clearly visible and legible to the motoring public. At a minimum, a public notice sign shall specify the time, date and location of the scheduled public hearing, the general nature of the hearing, and a phone number for additional information.

D. The planning department shall have the responsibility for the preparation of public notice signs for amendments to the official zoning map initiated by a member or members that fall within the fee waiver exceptions in Section 17.40.740.C of the Metropolitan Code. The planning department shall also be responsible for all costs associated with the preparation of such signs for three zoning applications per councilmember applicant each fiscal year.

E. Historic Zoning Commission Preservation Permits. Public notice signs shall be posted on any property subject to a preservation permit application that is subject to commission review as defined in the historic zoning commission rules. The public notice sign shall be installed on affected properties no less than eleven days prior to the consideration by the historic zoning commission. One double-sided 24" (vertical) × 36" (horizontal) sign shall be posted for every fifty feet of public road frontage, excluding alleys, and whenever practical be located within ten feet of the right of way and positioned in a manner to best inform the monitoring public without creating a safety hazard. A sign placed pursuant to this subsection shall contain at a minimum the time, date and location of the scheduled public hearing at the historic zoning commission, the general nature of the hearing, and a phone number for additional information. The applicant shall be responsible for the cost of preparation of these public notice signs, the placement of the signs in accordance with this provision, and providing proof of compliance to the historic zoning commission. (Amdt. 1 to Ord. BL2021-621 § 3, 2022; Ord. BL2021-621 §§ 2, 3, 2022; Ord. BL2016-218 § 2, 2016; Ord. BL2015-1100 § 1, 2015; Ord. BL2014-715 § 2, 2014; Ord. BL2014-685 § 1, 2014; § 3(2) of Amdt. with Ord. 96-555 § 10.15(D), 1997)

Article XVI. Application Fees

17.40.740 Generally.

Standardized fee schedules may be established to partially defray the processing and administration costs associated with each type of application associated with this title. A fee schedule established by this article shall be authorized by passage of a resolution by the council. All application fees shall be paid to the metropolitan government by the applicant at the time of filing. A fee structure established under authority of the preceding code and in effect upon the effective date of the ordinance codified in this title shall remain in effect

until superseded by a fee structure established under authority of this title. Fees shall be waived for the following:

A. Applications initiated by any federal or state agency, any department of the metropolitan government, or the metropolitan development and housing agency;

B. Any large area rezoning initiated by the planning commission to implement the general plan.

C. Any rezoning request initiated by a member or members of council for the purpose of:

1. Rezoning the property from a greater intensity residential use to a lesser intensity residential use (i.e., an "R" district to an "RS" district);

2. Rezoning the property from an office, commercial, or industrial district to a residential or residential single-family district;

3. Applying the urban design overlay district, historic preservation district, neighborhood conservation district, urban zoning overlay district, contextual overlay district, corridor design overlay district, residential accessory structure overlay district, two-story residential overlay district, detached accessory dwelling unit overlay district, or commercial compatibility overlay district as provided in Chapter 17.36;

4. An amendment to or cancellation of a planned unit development (PUD) district after the planning commission has determined the PUD to be inactive in accordance with Section 17.40.120.H.; or

5. For any other rezoning request initiated by a member of council, provided that each member of council shall be entitled to no more than three such fee waivers per fiscal year unless the rezoning request is consistent with subsections C.1 through C.4 of this section.

D. Up to two applications per fiscal year submitted to the board of zoning appeals by a member or members of council that have an identified community benefit and meet at least one of the following requirements:

1. The application is not for the benefit of an individual property owner or development.

2. The property owner demonstrates an inability to pay the required fee for the application. (Ord. BL2025-909 § 7, 2025; Ord. BL2024-335 § 1, 2024; Ord. BL2022-1509 § 3, 2023; Amdt. 2 to Ord. BL2021-620 § 2, 2021; Ord. BL2021-620 § 2, 2021; Ord. BL2020-151 § 7, 2020; Ord. BL2019-1540 § 7, 2019; Ord. BL2016-218 § 3, 2016; Ord. BL2014-771 § 7, 2014; Ord. BL2014-715 § 3, 2014; Ord. BL2012-229 § 1, 2012; Ord. BL2010-725 § 1, 2010; Ord. BL2006-1173 § 1, 2006; Ord. BL2004-409 § 1, 2005; Ord. 96-555 § 10.16(A), 1997)

17.40.750 Fees established by the zoning administrator.

A. The zoning administrator may develop for metropolitan council consideration fee schedules appropriate to partially or totally defray costs associated with the processing and review of final site plan applications for properties not subject to approval by the planning commission, and for all other permits reviewed under the jurisdiction of the zoning administrator.

B. Telecommunications Facility.

1. In addition to the fee schedule in subsection A. of this section, metro may require, in its sole discretion, a supplemental review by the Director of the Information Technology Services (ITS) Department or his designee, including an approved consultant, for any application for a telecommunication facility where new placement of telecommunications equipment on an alternative structure or new vertical support structures are sought or the complexity of the analysis requires technical expertise, and/or shall require the same for any request for a variance to Section 17.16.080.C., and all the costs of such review, in an amount not to exceed three thousand five hundred dollars, shall be borne by the applicant.

2. Based on the results of the supplemental review, the zoning administrator may require changes to or supplementation of the applicant's submittal(s).

3. The supplemental review may address any or all of the following:

a. The accuracy and completeness of the application and any accompanying documentation, including the impossibility of co-locating.

b. The applicability of analysis techniques and methodologies.

c. The validity of conclusions reached.

d. Whether the proposed telecommunications facility complies with the applicable approval criteria and standards of the Zoning Code and other applicable law. (Ord. BL2016-415 § 6, 2016; Ord. BL2001-675 § 1 (part), 2001; Ord. 96-555 § 10.16(B), 1997)

17.40.760 Fees established by the planning commission.

The planning commission may develop for metropolitan council consideration fee schedules appropriate to partially or totally defray costs associated with the processing and review of the following types of applications:

A. A change in zoning district classification on the official zoning map;

B. A change in the text of the zoning regulations;

C. Applying, canceling or modifying a planned unit development (PUD) or an overlay district;

D. A final site plan;

E. The noticing by mail, advertising in a newspaper of general circulation, and posting signs for a public hearing deferred by the planning commission or the metropolitan council; and,

F. A mandatory referral for an encroachment of the public right-of-way, a street name change, or the abandonment of a public street, alley or easement. (Ord. BL2001-675 § 1 (part), 2001; Ord. 96-555 § 10.16(C), 1997)

17.40.770 Fees established by the board of zoning appeals.

The board of zoning appeals may develop for metropolitan council consideration fee schedules appropriate to partially or totally defray costs associated with the processing and review of the following types of applications:

A. A variance to a provision of this title;

B. A special exception use;

C. A change to a nonconforming use or structure;

D. Any other application in which the board is required or requested to act. (Ord. BL2024-335 § 2, 2024; Amdt. 1 to Ord. BL2008-285 § 1, 2008; Ord. BL2008-285 § 1, 2008; Ord. BL2001-675 § 1 (part), 2001; Ord. 96-555 § 10.16(D), 1997)

Article XVII. Inclusionary Housing

17.40.780 Purpose and applicability of inclusionary housing provisions.

A. Purpose. The purposes of this section are to promote the public health, safety and welfare by increasing the production of inclusionary housing units to meet existing and anticipated housing and employment needs; mitigating the impacts of increasing housing cost and provide housing affordable to low and moderate income households; providing for a range of housing choices throughout the city to avoid the concentration of poverty; and to provide a mechanism by which residential development can contribute in a direct way to increasing the supply of affordable and workforce housing in exchange for additional development entitlements other than those otherwise permitted as a matter of right.

B. Applicability.

1. When additional residential development entitlements are gained through an amendment to the official zoning map or when public resources or property is provided for a residential development, the rental residential units shall be subject to the provisions of this section as long as adequate financial incentives from the Metropolitan Government of Nashville and Davidson County are available. On projects where a funding cap limits the financial incentives available to less than the value calculated based on the difference between the market rate rent and the selected workforce rent, the set aside may be adjusted annually to align the needed incentive with the funding available. A property owner or developer with for-sale residential units may participate in the incentives of this section.

2. For residential uses, developments fewer than five units are exempt. For the purposes of this subsection, "development" shall include any residential or mixed use development at one or more adjoining sites with common ownership or under common control, within a period of five years from the first date of the issuance of a building permit for construction.

3. Inclusionary housing shall not be provided and no financial incentives shall be granted if the average unit sale price or rental rate is less than, or within 5% above 100% Median Household Income (MHI) market prices or rental rates for Nashville and Davidson County and the Inclusionary Housing Plan demonstrates that the census tract average market rate prices or average rental rates for comparable units are affordable to a household at 100% MHI. (Ord. BL2016-133 § 1, 2016)

17.40.790 Requirements for inclusionary housing.

A. Construction. The set aside for affordable or workforce housing shall be:

	Rental at 60% MHI or less	Rental at Greater than 60% MHI to 80% MHI	Rental at Greater than 80% MHI to 100% MHI (available in the UZO only)	For-sale at Greater than 60% MHI to 80% MHI	For-sale at Greater than 80% MHI to 100% MHI (available in the UZO only)
Single-family and Two-family uses	12.5% of total residential units	15% of total residential units	17.5% of total residential units	10% of total residential units	15% of total residential units
Multi-family uses less than 3 stories	12.5% of total residential floor area	15% of total residential floor area	17.5% of total residential floor area	10% of total residential floor area	15% of total residential floor area

	Rental at 60% MHI or less	Rental at Greater than 60% MHI to 80% MHI	Rental at Greater than 80% MHI to 100% MHI (available in the UZO only)	For-sale at Greater than 60% MHI to 80% MHI	For-sale at Greater than 80% MHI to 100% MHI (available in the UZO only)
Multi-family uses (3 to 6 stories)	10% of total residential floor area	12.5% of total residential floor area	15% of total residential floor area	n/a	n/a
Multi-family uses (≥ 7 stories)	7.5% of total residential floor area	10% of total residential floor area	12.5% of total residential floor area	n/a	n/a
The office of economic opportunity and empowerment with assistance from the finance department may approve a mixture of MHI levels, provided the mixture is equivalent to the set asides above. The equivalency of the mixture of MHI levels and the approval shall be documented in the inclusionary housing plan.					
For the purposes of this Article, the residential floor area shall be the net leasable residential floor area.					

B. In Lieu Construction.

1. In lieu of meeting the inclusionary housing incentives on site, construction at the same rates included in subsection A of this section may be provided within the following distances from the development that is providing inclusionary housing:

i. One mile along the corridor, if the development that is providing inclusionary housing is on a multimodal corridor designated in the Major and Collector Street Plan, excluding expressways, freeways and ramps.

ii. A half mile, if the development that is providing inclusionary housing is not on a multimodal corridor designated in the Major and Collector Street Plan, excluding expressways, freeways and ramps.

iii. In lieu construction shall not be permitted at an alternate location if the inclusionary housing plan demonstrates that the alternate location's census tract market rate prices or rental rates for comparable units are affordable to a household at 100% MHI.

2. Use and occupancy permits for the affordable and/or workforce units shall be issued prior to the issuance of any use and occupancy permit for principal project.

C. In Lieu Contribution. There is hereby established a housing incentives fund to be maintained as an administrative account by the finance department for the purpose of funding the incentives grant program. In lieu of meeting the inclusionary housing incentives for rental units on site, prior to the issuance of building permits, an in lieu contribution may be provided to the housing incentives fund as follows:

Within the UZO	Outside of the UZO
Per square foot equivalent of 50% of the affordable sales price at 100% MHI for Davidson County 12.5% of the total residential floor area in a rental project.	Per square foot equivalent of 50% of the affordable sales price at 80% MHI for Davidson County 10% of the total residential floor area in a rental project.
The affordable sales price shall be determined by the Office of Economic Opportunity and Empowerment with assistance from the Finance Department annually based on: a. A maximum down payment of 5.0%, b. Current Year MHI thresholds adjusted for household size published by HUD, c. Prior six-month average rate of interest based on the Fannie Mae Yield on 30-year mortgage commitments (price at par) plus one-half point (0.5%) spread, d. 30-year mortgage term, e. Any homeowner fees, taxes and insurance, and f. Typical unit size.	

(Ord. BL2016-133 § 1, 2016)

17.40.800 Standards for construction and occupancy of affordable and/or workforce housing.

A. With the building permit application, the owner/developer shall submit an inclusionary housing plan, which documents the following:

1. Number of total residential units provided under the site plan.

2. Whether the development uses public resources or public property.

3. Number of affordable or workforce housing units provided.

4. Income levels of targeted families for affordable or workforce housing units.

5. The proposed rents or sales prices and guarantee of limits on future rent increases or sales prices.

6. Location of affordable or workforce housing units.

7. Sizes of affordable or workforce housing units.

8. Bedroom counts of affordable or workforce housing units.

9. Market rate pricing or rental rates for comparable units within the census tract for the project site and, if applicable, the in lieu site.

10. The party responsible for compliance reports, with approval from the office of economic opportunity and empowerment with assistance from the finance department.

B. To ensure livability, inclusionary housing units shall be at least eighty percent of the average size of market rate units and the breakdown of bedroom counts of inclusionary housing units shall be similar to the breakdown of bedroom counts for the market rate units in the project. After the inclusionary housing square footage is allocated according to the distribution of market rate units, any remaining square footage too small for construction of a unit shall utilize the in lieu contribution option.

C. Exteriors of inclusionary housing units shall closely resemble the exteriors of other units in a project.

D. The owner shall ensure to the satisfaction of the metropolitan government that the inclusionary housing units will:

1. Be occupied by eligible households.

2. Be maintained as rental inclusionary housing units for a minimum of fifteen years from the date of initial occupancy and/or be maintained as for-sale inclusionary housing unit for thirty years from the date of initial occupancy. (Ord. BL2016-133 § 1, 2016)

17.40.810 Enforcement.

A. Prior to the issuance of the first building permit, all standards for construction and Occupancy shall be documented on the building permit plans.

B. Prior to the issuance of the use and occupancy permit, all standards for construction and Occupancy shall be satisfied and documentation provided to the codes department.

C. During the applicable period, the owner, developer or designee shall provide a compliance report to the office of economic opportunity and empowerment in the form and manner determined by the office of economic opportunity and empowerment with assistance from the finance department. The party responsible for compliance reports shall be approved by the office of economic opportunity and empowerment and noted inclusionary housing plan. For for-sale developments, individual owners are not permitted to be the party responsible for compliance reports. (Ord. BL2016-133 § 1, 2016)

17.40.820 Sunset provisions.

A. The provisions of Article XVII (Inclusionary Housing) shall expire and be null and void as of December 31, 2019, unless extended by resolution of the metropolitan council. This provision, commonly known as a "sunset provision," is included to ensure that the effectiveness and necessity of this section is reviewed by the metropolitan council after its adoption.

B. Two years after its passage, the planning department shall conduct a study of the impact of Article XVII (Inclusionary Housing) and related incentives. This study shall include an assessment of the economic impact, impact on affordable housing and whether the incentives should be recalibrated. The study shall be delivered to the metropolitan council no later than six months before the sunset date. (Amdt. 1 to Ord. BL2016-133 § 1, 2016; Ord. BL2016-133 § 1, 2016)

STATUTORY REFERENCES
FOR
METROPOLITAN GOVERNMENT IN TENNESSEE

The statutory references listed below refer the code user to state statutes applicable to metropolitan government in Tennessee current through August 12, 2020

General Provisions

Adoption and provisions of charter
T.C.A. title 7, ch. 2

Municipal powers generally
T.C.A. title 6, ch. 54

Metropolitan government powers generally
T.C.A. title 7, ch. 3

Change of boundaries
T.C.A. title 6, ch. 51

Civil districts
T.C.A. § 7-1-105

Ordinances and codes
T.C.A. § 6-54-501 et seq.

Adoption by reference of standard codes
T.C.A. § 6-54-119

Police authority and penalties for violations
T.C.A. § 6-54-301 et seq.

Enforcement of ordinances—Citations and warrants
T.C.A. § 7-3-501 et seq.

Penalty limits
T.C.A. § 7-3-507

Fines
T.C.A. title 40, ch. 24.

Municipal elections
T.C.A. title 6, ch. 53

Holidays
T.C.A. title 15

Eminent domain
T.C.A. § 6-54-122

Administration

Officers, departments, boards, commissions
T.C.A. §§ 7-2-108(a)(11)—(a)(16)

Fire departments
T.C.A. title 5, ch. 17

Private fire companies
T.C.A. title 7, ch. 38

Compensation of local officials
T.C.A. § 7-51-301 et seq.

Hearing officers
T.C.A. title 7, ch. 7

Courts and judicial functions
T.C.A. § 7-3-311 and title 16 chs. 16—18

Travel and expenses
T.C.A. § 6-54-901 et seq.

Personnel

Employee compensation and indemnification
T.C.A. § 7-51-201 et seq.

Civil service and retirement systems
T.C.A. § 7-2-108(a)(17)

Personnel policies
T.C.A. § 6-54-123

Revenue and Finance

Privilege taxes
T.C.A. § 7-3-201 et seq.; title 67, ch. 4

Sales and use taxes
T.C.A. title 67, ch. 6

Taxing powers generally
T.C.A. title 6, ch. 55

Real property tax deferral
T.C.A. title 7, ch. 64

Receipt and management of funds
T.C.A. title 5, ch. 8

Authorized investments
T.C.A. § 6-56-106

Special assessments
T.C.A. title 7, ch. 32

Improvement bonds
T.C.A. title 7, ch. 33

Tourist accommodation tax
T.C.A. title 7, ch. 4

Fiscal affairs generally
T.C.A. title 6, ch. 56

Audits required
T.C.A. § 6-56-101 et seq.

Municipal Budget Law of 1982
T.C.A. § 6-56-201 et seq.

Municipal Purchasing Law of 1983
T.C.A. § 6-56-301 et seq.

Local Government Public Obligations Act of 1986
T.C.A. title 9 ch. 21

Business Licenses and Regulations

Licensing and taxing powers
T.C.A. title 6, ch. 55

Cable television
T.C.A. title 7, ch. 59

Alcoholic Beverages

Generally
T.C.A. title 57

Local option
T.C.A. title 57, chs. 2, 3

Municipal inspection fees
T.C.A. § 57-3-501 et seq.

Beer and alcoholic beverages containing less than five percent alcohol
T.C.A. title 57, ch. 5

Animals

Generally
T.C.A. title 44

Dogs and cats
T.C.A. title 44, ch. 17

Rabies
T.C.A. title 68, ch. 8

Health and Safety

Resource recovery and solid waste disposal
T.C.A. title 7, ch. 58; title 68, ch. 211

Metropolitan hospital authorities
T.C.A. title 7, ch. 57

Ambulance services
T.C.A. title 7, ch. 61

Local health services
T.C.A. title 68, ch. 2

Vital records
T.C.A. title 68, ch. 3

Water and sewage
T.C.A. title 68, ch. 221

Fire prevention
T.C.A. title 68, ch. 102

Fireworks
T.C.A. title 68, ch. 104

Air pollution control
T.C.A. title 68, ch. 201

Hazardous substances
T.C.A. title 68, ch. 131

Food, Drug and Cosmetic Act
T.C.A. title 53

Public Works and Contracts

Setting wages to be paid by private employers
T.C.A. § 50-2-112

Prohibited elements for public works bid and contract documents
T.C.A. § 12-4-903

Competitive bidding, T.C.A. § 12-4-113

Public Peace, Morals and Welfare

State criminal code
T.C.A. title 39

Police authority and penalties
T.C.A. § 6-54-301 et seq.

Enforcement
T.C.A. §§ 6-54-401, 6-54-402

Certain offenses preempted by state law
T.C.A. § 7-3-312

Vehicles and Traffic

Motor vehicle fees
T.C.A. §§ 7-51-702, 7-51-703

Rules of the road
T.C.A. title 55, ch. 8

Size, weight and load
T.C.A. title 55, ch. 7

Traffic citations
T.C.A. title 7, ch. 63

Vehicle equipment
T.C.A. title 55, ch. 9

Accidents, arrests, crimes and penalties
T.C.A. title 55, ch. 10

Abandoned vehicles
T.C.A. title 55, ch. 16

Streets, Sidewalks and Public Places

Streets and other public improvements
T.C.A. title 7, ch. 31

Improvements by special assessments
T.C.A. title 7, ch. 32

Central business improvement districts
T.C.A. title 7, ch. 84

Transportation systems
T.C.A. title 7, ch. 56

Metropolitan Government Port Authority Act
T.C.A. title 7, ch. 5

Water, Sewers and Other Public Services

Municipal utilities
T.C.A. title 7, ch. 34; T.C.A. § 7-51-401 et seq.

Sewers and waterworks
T.C.A. title 7, ch. 35

Municipal electric plants
T.C.A. title 7, ch. 52

Sanitary districts
T.C.A. title 7, ch. 81

Utility districts
T.C.A. title 7, ch. 82

Power districts
T.C.A. title 7, ch. 83

Buildings and Construction

Building regulations
T.C.A. title 68, ch. 120

Demolition of unoccupied buildings
T.C.A. § 7-3-305

Zoning

County zoning
T.C.A. §§ 13-7-101 et seq.

Municipal zoning
T.C.A. §§ 13-7-201 et seq.

Historic zoning
T.C.A. §§ 13-7-401 et seq.

CROSS-REFERENCE TABLE

This table provides users with the legislative history and the current disposition of the sections in the prior code. Thus, Section 2-1-1.2 was derived from Bill No. 72-229 §§ 1—4 and appears in the code at Section 2.04.030.

The legislative history information was derived from the Code of the Metropolitan Government of Nashville and Davidson County, Tennessee, published by order of the metropolitan council in 1967 by Michie City Publications Company, as amended.

Prior Code §	Ordinance History	Herein
Part III		
1-1-1		1.04.010
1-1-2		1.04.020
1-1-3		1.04.040
1-1-4		1.04.030
1-1-5		1.04.050
1-1-6		1.04.060
1-1-7		Repealed by 95-1329
1-1-8	66-18, § 1	1.24.040
1-1-9	64-287, § 1	1.08.010
1-1-10	64-287, § 2	1.08.020
1-1-11	64-287, § 3	1.08.030
2-1-1	66-907, §§ 1—3	2.04.010
2-1-1.1	70-1147, § 1; Bill No. 74-907 § 1, 4/2/74	2.04.020
2-1-1.2	Bill No. 72-229 §§ 1—4, 7/5/72	2.04.030
2-1-2	66-768, § 1	2.08.010
2-1-2.1	68-457, § 1	2.08.020
2-1-2.2	Bill No. 73-623 § 1, 8/7/73	2.08.030
2-1-2.3	Bill No. 85-885 § 1, 9/17/85; Bill No. 86-1176 § 2, 4/1/86	2.08.040
2-1-3	65-413, §§ 1—3	Repealed by 90-1339
2-1-3.1	7-1574, § 2	5.04.030
2-1-3.2	Bill No. 73-698 § 1, 10/16/73	2.04.040
2-1-3.3	Bill No. 73-756 § 1, 12/11/73	Repealed by 90-1339
2-1-3.4	Bill No. 78-836 §§ 1—3, 6/20/78	Repealed by 94-1078
2-1-3.5	Bill No. 80-296 § 1, 8/19/80; Bill No. 85-1062 § 1, 1/21/86; Bill No. 86-1562 § 1, 2/3/87	5.04.020
2-1-3.6	Bill No. 84-482 §§ 1—3, 10/2/84	2.136.010
2-1-3.7	Bill No. 85-714 § 1, 4/2/85	5.04.040
2-1-3.8(a)	Bill No. 88-417 §§ 1—5, 9/20/88	3.60.010
2-1-3.8(b)	Bill No. 88-417 §§ 1—5, 9/20/88	3.60.020
2-1-3.8(c)	Bill No. 88-417 §§ 1—5, 9/20/88	3.60.030
2-1-3.8(d)	Bill No. 88-417 §§ 1—5, 9/20/88	3.60.050
2-1-3.8(e)	Bill No. 88-417 §§ 1—5, 9/20/88	3.60.040
2-1-3.9(a)	Bill No. 88-436 §§ 1—5, 9/20/88	3.60.060
2-1-3.9(b), (c)	Bill No. 88-436 §§ 1—5, 9/20/88	3.60.070
2-1-3.9(d)	Bill No. 88-436 §§ 1—5, 9/20/88	3.60.090
2-1-3.9(e)	Bill No. 88-436 §§ 1—5, 9/20/88	3.60.080
2-1-3.10(a)	Bill No. 88-443 §§ 1, 2, 10/18/88	2.24.370
2-1-3.10(b)	Bill No. 88-443 §§ 1, 2, 10/18/88	2.24.380
2-1-4	63-40, § 1; Bill No. 77-454 § 1, 3/5/77	2.48.010
2-1-5	63-40, § 1	2.48.020
2-1-6	63-40, § 1; Bill No. 77-454 § 2, 3/5/77	2.48.030
2-1-7	63-1, § 1	2.40.010

Prior Code §	Ordinance History	Herein
2-1-8	65-544, § 1	2.40.050
2-1-8.1		2.40.060
2-1-9	63-1, § 2	2.40.040
2-1-9.1		Reserved
2-1-10	63-1, § 3	2.40.030
2-1-11		2.40.100
2-1-12	63-1, § 5; Bill No. 78-811 § 1, 2/7/78	2.40.110
2-1-13	63-1, § 6	2.40.080
2-1-14	63-1, § 7	2.40.090
2-1-15	63-1, § 9; 63-43, § 1	2.40.020
2-1-15.1	68-443, § 2	Repealed by 90-1339
2-1-15.2	Bill No. 73-539 §§ 1—3, 6/5/73	2.40.070
2-1-15.3(a)	Bill No. 83-3 §§ 2—6, 8, 10/18/83	2.40.150
2-1-15.3(b)	Bill No. 83-3 §§ 2—6, 8, 10/18/83	2.40.160
2-1-15.3(c)	Bill No. 83-3 §§ 2—6, 8, 10/18/83	2.40.170
2-1-15.3(d)	Bill No. 83-3 §§ 2—6, 8, 10/18/83	2.40.180
2-1-15.3(e)	Bill No. 83-3 §§ 2—6, 8, 10/18/83	2.40.190
2-1-15.3(f)	Bill No. 83-3 §§ 2—6, 8, 10/18/83	2.40.200
2-1-16	63-5, § 2	Repealed by 90-1339
2-1-17	63-18, § 1	Repealed by 90-1339
2-1-18	63-18, § 3	Repealed by 90-1339
2-1-19	63-18, § 5	2.60.060
2-1-20	63-36, § 1	2.20.010
2-1-21	65-479, § 1	Repealed by 90-1339
2-1-22	65-479, § 5	Repealed by 90-1339
2-1-23	65-479, § 4	Repealed by 90-1339
2-1-24	63-36, 2; 65-432, § 1; Bill No. 81-779 § 1, 1/19/82	2.20.020
2-1-25	65-479, § 6; 70-1258	2.20.060
2-1-26	63-36, § 3	2.20.030
2-1-27	64-348, § 1	2.20.040
2-1-28	65-669, Art. 1	2.20.100
2-1-29	65-654	2.20.120
2-1-30		Reserved
2-1-31		2.20.110
2-1-32	64-348, § 1; 65-654	2.20.080
2-1-33	63-36, § 5	2.20.050
2-1-34	65-479, § 3	2.20.070
2-1-35	65-479, § 8	2.20.090
2-1-36	66-60, § 1	2.32.010
2-1-37	66-60, § 1	2.32.020
2-1-38	66-60, § 2; Bill No. 75-3, §§ 1, 2, 10/21/75; Bill No. 82-1026 § 1, 10/5/82	2.32.030
2-1-39	66-60, § 7	2.32.040
2-1-40	66-60, §§ 9, 10	2.32.050
2-1.40.1—2-1.40.21		Reserved
2-1-41	64-319, § 1; Bill No. 73-661 § 1, 9/18/73	2.16.010
2-1-42	63-10, § 1	2.16.020
2-1-43	63-10, § 2	2.16.030
2-1-44	63-10, § 3	2.16.040
2-1-45	63-10, § 4	Repealed by 90-1339
2-1-46	64-319, § 2	2.16.050
2-1-47	65-570, § 1	2.68.010
2-1-47.1	Bill No. 75-1284 § 1, 8/19/75; Bill No. 78-868 § 1, 4/4/78	2.72.010
2-1-47.2	Bill No. 75-1284 § 2, 8/19/75	2.72.060

Prior Code §	Ordinance History	Herein
2-1-47.3	Bill No. 75-1284 § 3, 8/19/75	2.72.050
2-1-47.4	Bill No. 75-1284 § 4, 8/19/75; Bill No. 78-1021 § 1, 8/15/78	2.72.070
2-1-47.5	Bill No. 75-1284 § 5, 8/19/75	2.72.040
2-1-47.6	Bill No. 75-1284 § 6, 8/19/75	2.72.030
2-1-47.7	Bill No. 75-1284 § 7, 8/19/75	2.72.020
2-1-47.8	Bill No. 75-1284 § 8, 8/19/75	2.72.080
2-1-47.9	Bill No. 75-1284 § 9, 8/19/75	2.72.090
2-1-48	63-3, § 7	2.64.010
2-1-49	63-3, § 1	2.64.040
2-1-50	63-3, § 2	2.64.020
2-1-51	63-3, § 3	2.64.030
2-1-52	63-3, §§ 5, 6	2.64.050
2-1-53	69-749, § 1; Bill No. 76-88 § 1, 2/17/76	2.152.010
2-1-54	69-749, § 1; Bill No. 76-88 § 1, 2/17/76; Bill No. 81-493 § 1, 4/7/81	2.152.020
2-1-55	69-749, § 1; Bill No. 76-88 § 1, 2/17/76	2.152.040
2-1-56	69-749, § 1; Bill No. 76-88 § 1, 2/17/76	2.152.030
2-1-57	63-35, § 1	2.116.010
2-1-58	63-35, § 1	2.116.020
2-1-59	63-35, § 3	2.116.030
2-1-60	64-176, § 1	Repealed by 97-845
2-1-61	64-176, § 1; Bill No. 84-243 § 1, 4/17/84	Repealed by 97-845
2-1-62	64-176, § 9	Repealed by 97-845
2-1-63	64-176, § 2	Repealed by 97-845
2-1-64	64-176, § 3; 64-251, § 1	Repealed by 97-845
2-1-65	64-176, § 4	Repealed by 97-845
2-1-66	64-176, § 5	Repealed by 97-845
2-1-67	64-176, § 6	Repealed by 97-845
2-1-68	64-176, § 7	Repealed by 97-845
2-1-69	64-176, § 8	Repealed by 97-845
2-1-70	64-176, § 10	Repealed by 97-845
2-1-71	64-176, § 11	Repealed by 97-845
2-1-72	64-176, § 12	Repealed by 97-845
2-1-73	64-251, § 1	Repealed by 97-845
2-1-74	64-312, § 1	2.108.010
2-1-75	64-312, § 1; Bill No. 86-1554 § 1, 1/6/87	2.108.020
2-1-76	64-312, § 2	2.108.030
2-1-77	64-312, § 3	2.108.040
2-1-78	64-312, § 4	2.108.050
2-1-79	65-44, § 1	2.120.020
2-1-80	65-447, § 1	2.120.030
2-1-81	65-447, § 3	2.120.040
2-1-82	65-447, § 2	2.120.090
2-1-83		2.120.060
2-1-84	65-447, § 4	2.120.080
2-1-85	65-447, § 6	2.120.050
2-1-86	65-447, § 7	2.120.070
2-1-87	65-447, § 8	2.120.100
2-1-88	65-447, § 9	2.120.010
2-1-89	65-697, § 1	2.132.010
2-1-90	65-697, § 1	Repealed by 93-910
2-1-91	65-697, § 2; Bill No. 73-500 § 1, 4/17/73	Repealed by 93-910
2-1-92	65-697, § 3	Repealed by 93-910
2-1-93	65-697, § 4	Repealed by 93-910
2-1-94	65-697, § 5	Repealed by 93-910

Prior Code §	Ordinance History	Herein
2-1-95	65-697, § 6	Repealed by 93-910
2-1-96		Reserved
2-1-97	66-811, § 1	2.128.010
2-1-98	66-811	2.128.020
2-1-99	66-811, § 2	2.128.030
2-1-100	66-811, § 3	2.128.040
2-1-100.1	Bill No. 73-678 §§ 1—3, 10/2/73	2.128.050
2-1-101	66-811, § 4	2.128.060
2-1-101.1—2-1-101.3		Reserved
2-1-101.4	72-101, § 1	2.144.010
2-1-101.5—2-1-101.10		Reserved
2-1-101.11(a)	81-569, § 7, 6/16/81	2.96.010
2-1-101.11(b)	81-569, § 7, 6/16/81	2.96.020
2-1-101.11(c)	81-569, § 7, 6/16/81	2.96.030
2-1-101.11(d)	81-569, § 7, 6/16/81	2.96.040
2-1-101.11(e)	81-569, § 7, 6/16/81	2.96.050
2-1-101.12—2-1-1-1.14		Reserved
2-1-101.15	Bill No. 77-775 § 1, 2/7/78	Repealed by 90-1339
2-1-101.16	Bill No. 77-775 § 2, 2/7/78; Bill No. 79-1313, 5/15/79	Repealed by 90-1339
2-1-101.17	Bill No. 77-775 § 3, 2/7/78	Repealed by 90-1339
2-1-101.18	Bill No. 77-775 § 4, 2/7/78	Repealed by 90-1339
2-1-101.19	Bill No. 77-775 § 5, 2/7/78; Bill No. 79-1313 § 1, 5/15/79	Repealed by 90-1339
2-1-101.20	Bill No. 77-775 § 6, 2/7/78	Repealed by 90-1339
2-1-101.21—2-1-101.30		Reserved
2-1-101.31	Bill No. 78-883 § 1, 5/16/78	2.160.010
2-1-101.32	Bill No. 78-883 § 2, 5/16/78; Bill No. 80-234 § 1, 6/5/80	2.160.020
2-1-101.33	Bill No. 78-883 § 3, 5/16/78	2.160.030
2-1-101.34—2-1-101.45		Reserved
2-1-101.46	Bill No. 78-1145 § 2, 12/5/78	2.168.010
2-1-101.47	Bill No. 78-1145 § 3, 12/5/78	2.168.020
2-1-101.48	Bill No. 78-1145 § 4, 12/5/78	2.168.040
2-1-101.49	Bill No. 78-1145 § 5, 12/5/78	2.168.030
2-1-101.50	Bill No. 78-1145 § 6, 12/5/78	2.168.050
2-1-101.51—2-1-1-1.60		Reserved
2-1-101.61	Bill No. 78-1155 § 1, 12/19/78	2.112.010
2-1-101.62	Bill No. 78-1155 § 2, 12/19/78; Bill No. 87-73 § 1, 12/1/87; Bill No. 87-121 § 1, 1/19/88	2.112.020
2-1-101.63	Bill No. 78-1155 § 3, 12/19/78	2.112.030
2-1-101.64	Bill No. 78-1155 § 5, 12/19/78	2.112.040
2-1-101.65	Bill No. 84-572 § 1, 12/18/84	Repealed by 93-882
2-1-101.66	Bill No. 84-572 § 2, 12/18/84	Repealed by 93-882
2-1-101.67	Bill No. 84-572 § 3, 12/18/84	Repealed by 93-882
2-1-101.68	Bill No. 84-572 § 4, 12/18/84	Repealed by 93-882
2-1-101.69	Bill No. 84-572 § 5, 12/18/84	Repealed by 93-882
2-1-101.70	Bill No. 84-572 § 6, 12/18/84	Repealed by 93-882
2-1-101.71	Bill No. 84-572 § 7, 12/18/84	Repealed by 93-882
2-1-101.72	Bill No. 85-794 § 1, 6/18/85	2.124.010
2-1-101.73	Bill No. 85-794 § 2, 6/18/85	2.124.020
2-1-101.74	Bill No. 85-794 § 3, 6/18/85	2.124.030
2-1-101.75	Bill No. 85-794 § 4, 6/18/85	2.124.040
2-1-101.76	Bill No. 85-794 § 5, 6/18/85	2.124.050
2-1-102	63-8, §§ 1, 2	2.24.230
2-1-103	63-63, § 1	2.24.240
2-1-104	63-63, § 2	2.24.250

Prior Code §	Ordinance History	Herein
2-1-105	63-63, § 3	2.24.220
2-1-106	71-1514, § 1	Repealed by 92-210
2-1-107	71-1514, § 1	Repealed by 92-210
2-1-108	71-1514, § 1	Repealed by 92-210
2-1-109	71-1514, § 1	Repealed by 92-210
2-1-110	71-1514, § 1	Repealed by 92-210
2-1-111	71-1514, § 1	Repealed by 92-210
2-1-112	68-492, § 1; 71-1514, § 1	Repealed by 92-210
2-1-113	68-492, § 1; 71-1514, § 1	Repealed by 92-210
2-1-114	68-492, § 1	Repealed by 92-210
2-1-115	67-291, § 1	2.08.050
2-1-116	67-291, § 2	2.08.060
2-1-117	67-291, § 3	2.08.070
2-1-118	67-291, § 4	2.08.080
2-1-119	67-291, § 6	2.08.090
2-1-120	67-291, § 7	2.08.100
2-1-121	Bill No. 74-1055 § 1, 10/15/74	2.04.070
2-1-122	Bill No. 74-1055 § 2, 10/15/74	2.04.080
2-1-123	Bill No. 74-1055 § 3, 10/15/74	2.04.120
2-1-124	Bill No. 74-1055 § 4, 10/15/74	2.04.090
2-1-125	Bill No. 74-1055 § 5, 10/15/74	2.04.100
2-1-126	Bill No. 74-1055 § 6, 10/15/74	2.04.130
2-1-127	Bill No. 74-1055 § 7, 10/15/74	2.04.110
2-1-128	Bill No. 74-1055 § 8, 10/15/74	Repealed by 95-32
2-1-129	Bill No. 74-1055 § 9, 10/15/74	2.04.050
2-1-130	Bill No. 74-1055 § 10, 10/15/74	Repealed by 95-32
2-1-131	Bill No. 74-1055 § 11, 10/15/74	Repealed by 95-32
2-1-132	Bill No. 74-1055 § 12, 10/15/74	Repealed by 95-32
2-1-133	Bill No. 74-1055 § 13, 10/15/74	Repealed by 95-32
2-1-134	Bill No. 74-1055 § 14, 10/15/74	Repealed by 95-32
2-1-135	Bill No. 74-1055 § 15, 10/15/74	Repealed by 95-32
2-1-136	Bill No. 74-1055 § 16, 10/15/74	Repealed by 95-32
2-1-137	Bill No. 74-1055 § 17, 10/15/74	Repealed by 95-32
2-1-138	Bill No. 74-1055 § 18, 10/15/74	Repealed by 95-32
2-1-139	Bill No. 74-1055 § 19, 10/15/74	Repealed by 95-32
3-1-1	63-127, § 1	6.04.010
3-1-2	63-127, § 2	6.04.020
3-1-3	63-127, § 3	6.04.030
3-1-4	66-928, § 2	6.04.040
3-1-5	66-928, § 3	6.04.050
3-1-6	66-928, § 4	6.04.060
3-1-7	66-928, § 5	6.04.070
3-1-8	66-928, § 6	6.04.080
3-1-9	66-928, § 48; 69-888, § 1	6.04.090
4-1-1	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79; Bill No. 86-1263 § 1, 6/3/86; Bill No. 87-65 § 1, 12/1/87; Bill No. 88-317 § 1, 2, 6/14/88	10.56.010
4-1-2	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79	10.56.270
4-1-3	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79	10.56.200
4-1-4	Bill No. 72-309 § 1, 9/19/72	Repealed by 93-790
4-1-5	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-25 § 1, 1/15/80	10.56.250
4-1-6	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79; Bill No. 86-1263 § 1, 6/3/86; Bill No. 87-65 § 1, 12/1/87; Bill No. 88-317 § 3, 6/14/88	10.56.230

Prior Code §	Ordinance History	Herein
4-1-7	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79	10.56.220
4-1-8	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79; Bill No. 84-318 § 1, 6/5/84	10.56.240
4-1-8.1		Reserved
4-1-9	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-60 § 1, 12/18/79; Bill No. 82-1038 §§ 1, 2, 10/5/82	10.56.260
4-1-10	Bill No. 72-309 § 1, 9/19/72	10.56.170
4-1-11	Bill No. 79-1359 § 1, 6/5/79	10.56.190
4-1-12	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79	10.56.180
4-1-13	Bill No. 79-1359 § 1, 6/2/79	10.56.280
4-1-14	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79	10.56.290
4-1-15	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79; Bill No. 86-1263 § 3, 6/3/86	10.56.300
4-1-16(a)	Bill No. 72-309 § 1, 9/19/72; Bill No. 76-205 § 1, 7/20/76; Bill No. 79-1359 § 1, 6/5/79; Bill No. 82-1038 §§ 3, 4, 10/5/82; Bill No. 88-317 §§ 4, 5, 6/14/88	10.56.020
4-1-16(b)	Bill No. 72-309 § 1, 9/19/72; Bill No. 76-205 § 1, 7/20/76; Bill No. 79-1359 § 1, 6/5/79; Bill No. 82-1038 §§ 3, 4, 10/5/82; Bill No. 88-317 §§ 4, 5, 6/14/88	Repealed by 93-790
4-1-16(c)	Bill No. 72-309 § 1, 9/19/72; Bill No. 76-205 § 1, 7/20/76; Bill No. 79-1359 § 1, 6/5/79; Bill No. 82-1038 §§ 3, 4, 10/5/82; Bill No. 88-317 §§ 4, 5, 6/14/88	10.56.040
4-1-16(d)	Bill No. 72-309 § 1, 9/19/72; Bill No. 76-205 § 1, 7/20/76; Bill No. 79-1359 § 1, 6/5/79; Bill No. 82-1038 §§ 3, 4, 10/5/82; Bill No. 88-317 §§ 4, 5, 6/14/88	10.56.060
4-1-16(e)	Bill No. 72-309 § 1, 9/19/72; Bill No. 76-205 § 1, 7/20/76; Bill No. 79-1359 § 1, 6/5/79; Bill No. 82-1038 §§ 3, 4, 10/5/82; Bill No. 88-317 §§ 4, 5, 6/14/88	10.56.070
4-1-16(f)	Bill No. 72-309 § 1, 9/19/72; Bill No. 76-205 § 1, 7/20/76; Bill No. 79-1359 § 1, 6/5/79; Bill No. 82-1038 §§ 3, 4, 10/5/82; Bill No. 88-317 §§ 4, 5, 6/14/88	Repealed by 93-790
4-1-17	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79; Bill No. 87-65 §§ 2—6, 12/1/87	Repealed by 93-790
4-1-18	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79; Bill No. 86-1263 § 4, 6/3/86; Bill No. 88-317 § 6, 6/14/88	10.56.160
4-1-19	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79	10.56.090
4-1-20	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79	10.56.100
4-1-21	Bill No. 72-309 § 1, 9/19/72	10.56.110
4-1-22	Bill No. 72-309 § 1, 9/19/72	10.56.120
4-1-23	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79	10.56.130
4-1-24	Bill No. 72-309 § 1, 9/19/72; Bill No. 79-1359 § 1, 6/2/79	10.56.140
4-1-25	Bill No. 72-309 § 1, 9/19/72	10.56.150
4-1-26		Number not used
4-1-27	Bill No. 72-309 § 1, 9/19/72	Not codified
4A-1-1	Bill No. 78-1023 § 1, 9/19/78	2.60.010
4A-1-2	Bill No. 78-1023 § 1, 9/19/78	2.60.020
4A-1-3	Bill No. 78-1023 § 1, 9/19/78	2.60.030
4A-1-4	Bill No. 78-1023 § 1, 9/19/78	2.60.040
4A-1-5	Bill No. 78-1023 § 1, 9/19/78	2.60.050
4A-1-6	Bill No. 78-1023 § 1, 9/19/78	2.60.260
4A-1-7	Bill No. 78-1023 § 1, 9/19/78	2.60.170
4A-1-8	Bill No. 78-1023 § 1, 9/19/78	2.60.240
4A-1-9	Bill No. 78-1023 § 1, 9/19/78	2.60.220
4A-1-10	Bill No. 78-1023 § 1, 9/19/78	2.60.190

Prior Code §	Ordinance History	Herein
4A-1-11	Bill No. 78-1023 § 1, 9/19/78	2.60.250
4A-1-12	Bill No. 78-1023 § 1, 9/19/78	2.60.180
4A-1-13	Bill No. 78-1023 § 1, 9/19/78	2.60.120
4A-1-14	Bill No. 78-1023 § 1, 9/19/78	2.60.200
4A-1-15	Bill No. 78-1023 § 1, 9/19/78	2.60.230
4A-1-16	Bill No. 78-1023 § 1, 9/19/78	2.60.130
4A-1-17	Bill No. 78-1023 § 1, 9/19/78	2.60.210(A)
4A-1-18	Bill No. 78-1023 § 1, 9/19/78	2.60.100
4A-1-19	Bill No. 78-1023 § 1, 9/19/78	2.60.160
4A-1-20	Bill No. 78-1023 § 1, 9/19/78	2.60.210(B)
4A-1-21	Bill No. 78-1023 § 1, 9/19/78	2.60.070
4A-1-22	Bill No. 78-1023 § 1, 9/19/78	2.60.080
4A-1-23	Bill No. 78-1023 § 1, 9/19/78	2.60.090
4A-1-24	Bill No. 78-1023 § 1, 9/19/78	2.60.110
4A-1-25	Bill No. 78-1023 § 1, 9/19/78	2.60.140
4A-1-26	Bill No. 78-1023 § 1, 9/19/78	2.60.150
4A-1-27	Bill No. 78-1023 § 1, 9/19/78	2.60.270
4A-1-28	Bill No. 78-1023 § 1, 9/19/78	2.60.360
4A-1-29(a)	Bill No. 78-1023 § 1, 9/19/78	2.60.370
4A-1-29(b)—(d)	Bill No. 78-1023 § 1, 9/19/78	2.60.380
4A-1-30	Bill No. 78-1023 § 1, 9/19/78	2.60.390
4A-1-31	Bill No. 78-1023 § 1, 9/19/78	2.60.430
4A-1-32	Bill No. 78-1023 § 1, 9/19/78	2.60.410
4A-1-33	Bill No. 78-1023 § 1, 9/19/78	2.60.440
4A-1-34	Bill No. 78-1023 § 1, 9/19/78	2.60.420
4A-1-35	Bill No. 78-1023 § 1, 9/19/78	2.60.400
4A-1-36(a)	Bill No. 78-1023 § 1, 9/19/78	2.60.280
4A-1-36(b)	Bill No. 78-1023 § 1, 9/19/78	2.60.350
4A-1-37(a)	Bill No. 78-1023 § 1, 9/19/78	2.60.300
4A-1-37(b)	Bill No. 78-1023 § 1, 9/19/78	2.60.290
4A-1-37(c)	Bill No. 78-1023 § 1, 9/19/78	2.60.340
4A-1-37(d)	Bill No. 78-1023 § 1, 9/19/78	2.60.320
4A-1-37(e)	Bill No. 78-1023 § 1, 9/19/78	2.60.310
4A-1-37(f)	Bill No. 78-1023 § 1, 9/19/78	2.60.330
4A-1-38	Bill No. 78-1023 § 1, 9/19/78	2.60.450
4A-1-39	Bill No. 78-1023 § 1, 9/19/78	2.60.460
4A-1-40	Bill No. 78-1023 § 1, 9/19/78	2.60.470
4A-1-41	Bill No. 78-1023 § 1, 9/19/78	2.60.480
4A-1-42	Bill No. 78-1023 § 1, 9/19/78	2.60.490
5-1-1	68-441, § 3	7.04.010
5-1-2	68-441, § 3	Repealed by 93-582
5-1-3	68-441, § 3	7.04.030
5-1-4	68-441, §§ 3, 4	7.04.040
5-1-5	Bill No. 77-766 § 1, 1/17/78	7.04.050
5-1-6	Bill No. 77-766 § 1, 1/17/78	7.04.060
5-1-7	68-441 § 1; Bill No. 76-124 § 1, 3/16/76; Bill No. 77-766 § 3, 1/17/78; Bill No. 79-1293 § 1, 4/17/79	7.08.010
5-1-8	68-441, § 2	7.08.180
5-1-9	68-441, § 10A	7.08.190
5-1-10	65-625, § 7	7.08.200
5-1-11	68-441, § 10	7.08.230
5-1-12	65-625, § 9	7.08.210
5-1-13	65-625, § 10	7.08.220
5-1-13.1	Bill No. 77-701 § 1, 10/18/77; Bill No. 85-855 § 1, 8/6/85	Repealed by 99-1794

Prior Code §	Ordinance History	Herein
5-1-14	65-625, § 2	7.08.020
5-1-15	65-625, § 5; Bill No. 77-766 § 4, 1/17/78	7.08.030
5-1-15.1	Bill No. 84-573 § 1, 12/18/84	7.08.150
5-1-16	68-441 §§ 4, 6; Bill No. 77-766 §§ 5—7; 1/17/78; Bill No. 80-35 § 1, 9/16/80; Bill No. 87-1910 § 1, 8/18/87	Repealed by 99-1794
5-1-17	68-441 §§ 4, 5; Bill No. 70-1312 § 1; Bill No. 76-17 § 1, 6/1/76; Bill No. 80-412 § 1, 12/16/80; Bill No. 1341 §§ 1, 2, 8/2/83	Repealed by 99-1794
5-1-18	68-441 § 4	Repealed by 99-1794
5-1-18.1	68-441 § 7	7.08.070
5-1-18.2	68-441, § 4; 69-900, § 1; 70-1194, § 1; 71-150, §§ 1, 2; 71-5, § 1; 72-156, §§ 1, 2; Bill No. 76-130 § 1, 4/20/76; Bill No. 77-766 § 8, 1/17/78; Bill No. 78-957 § 1, 7/18/78	7.08.090
5-1-18.3	Bill No. 080-163 § 1, 4/15/80	7.08.100
5-1-19	65-625, § 2	Repealed by 99-1794
5-1-20	68-441, § 5; Bill 77-766 § 9, 1/17/78	Repealed by 99-1794
5-1-21	65-625, § 11; Bill 77-766 § 10, 1/17/78	7.08.080
5-1-22	65-625, § 11	Repealed by 99-1794
5-1-23	65-625, § 12; 67-290, § 1; Bill No. 77-766 § 10, 1/17/78; Bill No. 80-305 § 1, 9/16/80; Bill No. 87-1910 § 1, 8/18/87	7.08.140
5-1-23.1		Reserved
5-1-23.2	68-441 § 9; Bill No. 77-766 § 11, 1/17/78; Bill No. 80-305 § 1, 9/16/80; Bill No. 87-1910 §§ 1, 2, 8/18/87	Repealed by 99-1794
5-1-23.3	68-441, § 8; 71-1405 § 1; Bill No. 74-987 § 1, 6/18/74; Bill No. 77-766 §§ 12, 13, 1/17/78; Bill No. 80-305 § 1, 9/16/80; Bill No. 87-1910 §§ 1, 4, 8/18/87	7.08.170
5-1-24	65-546, § 1	7.12.010
5-1-25	65-546, § 1; 68-491, § 1; 69-925, § 1	7.12.020
5-1-26	69-925, § 1	7.12.030
5-1-27	65-546, § 1; 68-470 § 1; 69-925, § 1	7.12.040
5-1-28		Repealed by 69-925
5-1-29		Repealed by 69-925
5-1-30	65-546, § 1	7.12.050
5-1-30.1	68-594, § 1	7.12.060
5-1-31	65-546, § 1	7.12.070
5-1-32	Bill No. 76-150 § 1, 6/15/76; Bill No. 80-305 § 1, 9/16/80	7.24.020
5-1-33	Bill No. 77-485 § 1, 5/17/77; Bill No. 79-1298 § 1, 4/3/79	7.24.010
5-1-34	Bill No. 80-304 § 1, 10/7/80	7.24.030
5-2-1	Code 1960, § 20-1; 68-523, § 1	7.16.010
5-2-2	Code 1960, § 20-2	7.16.020
5-2-3	Code 1960, § 20-3; 68-523, § 2; 68-523, § 2; Bill No. 76-194 § 1, 2/15/77	7.16.030
5-2-4	Code 1960, § 20-5	7.16.040
5-2-5	Code 1960, § 20-6	7.16.070
5-2-6	Code 1960, § 20-7	7.16.080
5-2-7	Code 1960, § 20-8	7.16.060
5-2-8	Code 1960, § 20-8	Repealed by 90-1339
5-2-9	Code 1960, § 20-8	Repealed by 90-1339
5-2-10	Code 1960, § 20-12	Repealed by 90-1339
5-2-11	Code 1960, § 20-14	Repealed by 90-1339
5-2-12	Code 1960, § 20-14	Repealed by 90-1339
5-2-13	Code 1960, § 20-14	Repealed by 90-1339
5-2-14	Code 1960, § 20-14	Repealed by 90-1339
5-2-15	Code 1960, § 20-14	Repealed by 90-1339
5-2-16	Code 1960, § 20-14	Repealed by 90-1339

Prior Code §	Ordinance History	Herein
5-2-17	Code 1960, § 20-14	7.16.050
5-2-18	Code 1960, § 20-17	Repealed by 90-1339
5-2-19	Code 1960, § 20-18	Repealed by 90-1339
5-2-20	Code 1960, § 20-19	Repealed by 90-1339
5-2-21	Code 1960, § 20-20	Repealed by 90-1339
5-2-22	Code 1960, § 20-21	Repealed by 90-1339
5-2-23	Code 1960, § 20-22	Repealed by 90-1339
5-2-24	Code 1960, § 20-23	Repealed by 90-1339
5-2-25	Code 1960, § 20-24	Repealed by 90-1339
5-2-26	Code 1960, § 20-25	Repealed by 90-1339
5-2-27	Code 1960, § 20-26	Repealed by 90-1339
5-2-28	Code 1960, § 20-29	Repealed by 90-1339
5-2-29	Code 1960, § 20-30	Repealed by 90-1339
5-2-30	Code 1960, § 20-31	Repealed by 90-1339
5-2-31	Code 1960, § 20-32	Repealed by 90-1339
5-2-32	Code 1960, § 20-33	Repealed by 90-1339
5-2-33	Code 1960, § 20-34	Repealed by 90-1339
5-2-34	Code 1960, § 20-35	Repealed by 90-1339
5-2-35	Code 1960, § 20-36	Repealed by 90-1339
5-2-36	Code 1960, § 20-8	Repealed by 90-1339
5-2-37	Code 1960, § 20-8	7.16.160
5-2-38		7.16.100
5-2-39	Code 1960, § 20-8	7.16.170
5-2-40		7.16.180
5-2-41	Code 1960, § 20-8	Repealed by 90-1339
5-2-42	Code 1960, § 20-15	7.16.130
5-2-43		7.16.120
5-2-44	Code 1960, § 20-27	7.16.190
5-2-45	Code 1960, § 20-28	7.16.150
5-2-46	Code 1960, § 20-10	7.16.090
5-2-47	Code 1960, § 20-9	Repealed by 90-1339
5-2-48	Code 1960, § 20-9	7.16.140
5-2-49	Code 1960, § 20-4; 68-523 § 3; 7-1170, § 1	7.16.110
5-2-50	Code 1960, § 20-9	Repealed by 90-1339
5-2-51	Code 1960, § 20-11	Repealed by 90-1339
5-2-52	Code 1960, § 20-11	Repealed by 90-1339
5-2-53	Code 1960, § 20-11	Repealed by 90-1339
5-2-54	Code 1960, § 20-13	Repealed by 90-1339
5-2-55	Code 1960, § 20-11	Repealed by 90-1339
5-2-56	Code 1960, § 20-39	Repealed by 90-1339
5-2-57	Code 1960, § 20-40	Repealed by 90-1339
5-2-58	Code 1960, § 20-41	Repealed by 90-1339
5-2-59	Code 1960, § 20-42	Repealed by 90-1339
5-2-60	Code 1960, § 20-43	Repealed by 90-1339
5-2-61	Code 1960, § 20-44	Repealed by 90-1339
5-2-62	Code 1960, § 20-45	Repealed by 90-1339
5-2-63		Repealed by 68-441
5-2-64	Code 1960, § 20-55	Repealed by 99-1794
5-2-65		Repealed by 68-441
5-2-66		Repealed by 68-441
5-2-67	Code 1960, § 20-79	Repealed by 93-579
5-2-68		Repealed by 68-441
5-2-69	Code 1960, § 20-81	7.20.030
5-2-70		Repealed by 68-441

Prior Code §	Ordinance History	Herein
5-2-71	Code 1960, § 20-83	7.20.040
5-3-1		Repealed by 68-441
5-3-2	Reso. April, 1933	Repealed by 90-1339
5-3-3	Reso. April, 1933	Repealed by 90-1339
7-1-1	69-822, § 1	6.12.010
7-1-2	69-822, § 1; 70-1311, § 1	6.12.020
7-1-3	69-822, § 1	6.12.030
7-1-4	69-822, § 1	6.12.040, 6.12.090
7-1-5	69-822, § 1	6.12.080
7-1-6	69-822, § 1; 70-1151, § 2; Bill No. 77-549 § 1, 6/15/77	Repealed by 98-1474
7-1-7	69-822, § 1	Repealed by 98-1474
7-1-8	69-822, § 1	6.12.050
7-1-9	Bill No. 77-767 § 1	6.24.010
7-2-1	Code 1960, § 31-5	Repealed by 90-1339
7-2-2	Code 1960, § 31-6	Repealed by 90-1339
7-2-3—7-2-9		Repealed by 69-822
8-1-1	63-61, § 3.1102	8.12.020
8-1-2	67-119, § 1	8.04.010
8-1-3	67-119, § 1	8.04.020
8-1-4	67-119, § 1	8.04.030
8-1-5	67-119, § 1; Bill No. 76-353 § 1, 12-21-76	8.04.040
8-1-6	67-119, § 1	8.04.080
8-1-7	67-119, § 1	8.04.060
8-1-8	67-119, § 1; Bill No. 76-353 § 2, 12/21/76	8.04.070
8-1-9	67-119, § 1; 70-1056, § 1; Bill No. 77-551 § 1, 6/15/77; Bill No. 84-423 § 1, 8/21/84	8.04.110
8-1-10		8.04.130
8-1-11	67-119, § 1	Repealed by 99-1796
8-1-12	67-119, § 1	8.04.100
8-1-12.1	70-1056, § 3	8.04.090
8-1-13	67-119, § 1	8.04.150
8-1-14	67-119, § 1; Bill No. 84-423 §§ 2, 3, 8/21/84	8.04.120
8-1-15	67-119, § 1	8.04.160
8-1-16	67-119, § 1	8.04.170
8-1-17	67-119, § 1	8.04.050
8-1-18	Bill No. 88-404 § 1, 8/21/88	8.16.010
8-1-19	Bill No. 88-404 § 1, 8/21/88	8.16.020
8-1-20	Bill No. 88-404 § 1, 8/21/88	8.16.040
8-1-21	Bill No. 88-404 § 1, 8/21/88	8.16.050
8-1-22	Bill No. 88-404 § 1, 8/21/88	8.16.030
8-1-23	Bill No. 88-404 § 1, 8/21/88	8.16.060
8-2-1	Code 1960, § 4-22	8.20.010
8-2-2	Code 1960, § 4-25	8.20.020
8-2-3	Code 1960, § 4-26	8.20.030
8-2-4	Code 1960, § 4-2	Repealed by 99-1776
8-2-5	Code 1960, § 4-3	Repealed by 99-1776
8-2-6	Code 1960, § 4-4	8.20.040
8-2-7	Code 1960, § 4-5	Repealed by 99-1776
8-2-8	Code 1960, § 4-6	8.20.170
8-2-9	Code 1960, § 4-7	8.20.050
8-2-10	63-61, § 3.1101	8.20.130
8-2-11	63-61, § 3.1103	8.20.100
8-2-12	Code 1960, § 4-10	8.20.110
8-2-13	Code 1960, § 4-11	8.20.120

Prior Code §	Ordinance History	Herein
8-2-14	Code 1960, § 4-13	8.20.060
8-2-15	Code 1960, § 4-14	8.20.070
8-2-16	Code 1960, § 4-15	8.20.090
8-2-17	Code 1960, § 4-16	8.20.080
8-3-1	63-61, § 3.1101	8.24.010
9-2-1	Code 1960, § 5-2	6.84.010
9-2-2	Code 1960, § 5-4	6.84.070
9-2-3	Code 1960, § 5-5	6.84.060
9-2-4	Code 1960, § 5-6	6.84.050
9-2-5	Code 1960, § 5-7	6.84.020
9-2-6	Code 1960, § 5-8	6.84.040
9-2-7	Code 1960, § 5-9	6.84.030
9-2-8	Code 1960, § 5-10	6.84.080
9-2-9	Code 1960, § 5-11	6.84.090
9-2-10	Code 1960, § 5-13	6.88.020
9-2-11	Code 1960, § 5-14	6.88.030
9-2-12	Code 1960, § 5-15	6.88.010
9-2-13	Code 1960, § 5-16	6.88.040
9-2-14	Code 1960, § 5-17	6.88.050
9-2-15	Code 1960, § 5-18	6.88.060
9-2-16	Code 1960, § 5-19	6.88.080
9-2-17	Code 1960, § 5-20	6.88.070
9-2-18	Code 1960, § 5-21	6.88.090
Ch. 10		Reserved
11-1-1	64-348, § 1	16.04.010
11-1-2	64-348, § 1; 65-669, Art. 1; 66-789, § 1	16.04.020
11-1-3	64-348, § 1	16.04.030
11-1-4	64-348, § 1; 70-1088, § 1	16.04.040
11-1-5	64-348, § 1	16.04.160
11-1-6		Reserved
11-1-7	64-348, § 1; 67-185, Art. 1 § 1	16.04.110
11-1-8	64-348, § 1; Bill No. 83-66 § 1, 12/6/83	16.04.120
11-1-9	64-348, § 1	16.04.050
11-1-10	64-348, § 1; Bill No. 83-66, § II, 12/6/83	16.04.060
11-1-11	64-348, § 1	16.04.140
11-1-12	64-348, § 1	16.04.070
11-1-13	64-348, § 1	16.04.080
11-1-14	Bill No. 82-906 § 1, 6/1/82; Bill No. 87-1672 § 1, 4/21/87	16.04.100
11-1-15	64-348, § 1; 65-669, Art. 1; 66-738, § 1; 66-789, § 3; Bill No. 76-181 § 1, 6/15/76; Bill No. 77-410 § 1, 2/1/77; Bill No. 83-66 § III, 12/6/83; Bill No. 85-1060 § 1, 2/4/86	Repealed by 94-1226
11-1-16	64-348, § 1	16.04.150
11-1-17	64-348, § 10; 65-669, Art. 4	16.04.170
11-1-17.1	67-185, Art. 4	Repealed by 98-1445
11-1-17.2	67-185, Art. 1, § 8	16.04.130
11-1-17.3	67-185, Art. 1, § 4	16.04.190
11-1-17.4	65-669, Art. 3; 66-813, § 4; 67-185, Art. 1, § 4; Bill No. 79-1349 § 1, 6/28/79	16.04.200
11-1-17.5	Bill No. 76-183, Art. I, 6/1/76	16.04.230
11-1-17.6	Bill No. 79-1349 § 1, 6/28/79; Bill No. 85-866 § 1, 8/20/85	16.04.210
11-1-17.7	Bill No. 88-227 § 1, 4/19/88	16.04.220
11-1-17.8	Bill No. 88-346 § 1, 10/4/88	16.44.010
11-1-17.9	Bill No. 88-346 § 1, 10/4/88	16.44.020
11-1-17.10(a)	Bill No. 88-346 § 1, 10/4/88	16.44.030

Prior Code §	Ordinance History	Herein
11-1-17.10(b)	Bill No. 88-346 § 1, 10/4/88	16.44.040
11-1-17.10(c)	Bill No. 88-346 § 1, 10/4/88	16.44.050
11-1-17.10(d)	Bill No. 88-346 § 1, 10/4/88	16.44.060
11-1-18	64-348	2.80.010
11-1-19	64-348, § 1; 65-669, Art. 1; Bill No. 85-833 § 2, 9/17/85; Bill No. 87-1673 § 2, 4/7/87	2.80.020
11-1-20	64-348, § 1	2.80.030
11-1-21	64-348, § 1	2.80.040
11-1-22	64-348, § 1	2.80.050
11-1-23	64-348, § 1	Repealed by 98-1445
11-1-24	64-348, § 1; Bill No. 83-66 § IV, 12/6/83; Bill No. 85-833 § 3, 9/17/85	2.80.070
11-1-25	64-348, § 1	Repealed by 98-1445
11-1-26	64-348, § 1	2.80.100
11-1-27	64-348, § 1	Repealed by 98-1445
11-1-28	64-348, § 1	2.80.110
11-1-29	64-348, § 2; 65-669, Art. 2; 67-185, Art. 2; 70-1088, § 2; Bill No. 72-290 Art. I, 8/15/72; Bill No. 74-1118 Art. I, 10/15/74; Bill No. 79-1349 § 3, 6/28/79; Bill No. 82-66 § V, 12/6/83; Bill No. 85-733 § 1, 5/21/85; Bill No. 85-949 § 1, 10/1/85	16.08.010
11-1-29.1	Ord. No. 87-1673 § 3, 4/7/87	Repealed by 90-1253 Amdt. 1
11-1-29.2	Ord. No. 87-1675 §§ 1—3, 4/7/87	Repealed by 89-612
11-1-30		Not codified
11-1-31	64-348, § 1; 65-669, Art. I; 66-789, § 2; Bill No. 83-66, § VII, 12/6/83	16.28.010
11-1-31.1	65-669, Art. 3; 67-195, Art. 1, § 4; 70-1088, § 3; Bill No. 83-66 § VIII, 12/6/83	16.28.020
11-1-32	64-348, § 1; 65-669, Art. I	Repealed by 95-1487
11-1-33	64-348, § 1	16.28.040
11-1-34	64-348, § 1; 67-185, § 2; 70-1088, § 11; Bill No. 79-1349 § 5, 6/28/79; Bill No. 83-66 § IX, 12-6-83; Bill No. 87-1672 § 2, 4/21/87	16.28.050
11-1-35	64-348, § 1	16.28.060
11-1-36	64-348, § 1	16.28.180
11-1-37	64-348, § 1	16.28.070
11-1-38	64-348, § 1; 67-185, Art. 1, § 3	16.28.080
11-1-39	64-348, § 1	16.28.090
11-1-40	64-348, § 1; 65-669, Art. 1	Repealed by 94-1226
11-1-41	64-348, § 1	16.28.170
11-1-42	64-348, § 1; 65-669, Art. 1, § 5; 70-1088, § 4; Bill No. 74-1118 Art. II, 10/15/74; Bill No. 79-1349 § 6, 6/28/78; Bill No. 85-733 § 3, 5/21/85; Bill No. 87-1672 § 3, 4/21/87; Bill No. 87-1673 § 5, 4/7/87	16.28.110
11-1-43	64-348, § 1; 65-669, Art. 1	16.28.130
11-1-44	64-348, § 1; Bill No. 79-1349 § 7, 6/28/79; Bill No. 85-733 § 4, 5/21/85	Repealed by 95-1324
11-1-44.1	67-185, Art. 1, § 6; Bill No. 79-1349 § 8, 6/28/79	16.28.140
11-1-45	64-348, § 1	16.28.150
11-1-46	64-348, § 1; 65-669, Art. 1	16.28.160
11-1-47	64-348, § 1	16.28.190
11-1-48	64-348, § 1	16.28.200
11-1-49	64-348, § 1	16.28.230
11-1-50	64-348, § 1; 66-813, § 1; Bill No. 79-1349 § 9, 6/28/79; Bill No. 88-462 § 1, 10/4/88	16.28.240
11-1-51	64-348, § 1; 65-669, Art. 1; 66-789, § 2	16.28.210
11-1-52	64-348, § 1	16.28.250
11-1-52.1	67-185, Art. I, § 7	Repealed by 98-1445
11-1-53	64-348, § 1	16.32.010

Prior Code §	Ordinance History	Herein
11-1-54	64-348, § 1; 70-1088, § 5; Bill No. 72-290 Art III, 8/15/72	16.32.020
11-1-55	64-348, § 1; Bill No. 83-66 § X, 12/6/83; Bill No. 87-1673 § 6, 4/7/87	16.32.030
11-1-56	64-348, § 1	16.32.060
11-1-57	64-348, § 1	16.32.050
11-1-58	64-348, § 1	16.32.040
11-1-59	64-348, § 1; Bill No. 79-1245 § 1, 3/20/79	16.36.010
11-1-60	64-348, § 1; Bill No. 79-1245 § 1, 3/20/79	16.36.020
11-1-61	64-348, § 1	16.36.030
11-1-62	64-348, § 1; Bill No. 79-1245 § 1, 3/20/79	16.36.040
11-1-63	64-348, § 1	16.40.010
11-1-64	64-348, § 1; Bill No. 83-66 § XI, 12/6/83	16.40.020
11-1-65	64-348, § 1	16.40.030
11-1-66	64-348, § 1	16.40.040
11-1-67	64-348, § 1	Repealed by BL2000-497
11-1-68	64-348, § 1; 65-669, Art. 1; 70-1088, § 6; Bill No. 1349 § 10, 6/28/79	Repealed by BL2000-497
11-1-69	64-348, § 1	Repealed by BL2000-497
11-1-70	64-348, § 1; 65-669, Art. 1; 70-1088, § 7	Repealed by BL2000-497
11-1-71	64-348, § 1	16.52.080
11-1-72	64-348, § 1	16.52.070
11-1-73	64-348, § 1	16.52.090
11-1-74	64-348, § 1; 70-1088, § 8	Repealed by BL2000-497
11-1-75	64-348, § 1	Repealed by BL2000-497
11-1-76	64-348, § 1; Bill No. 83-66 § XII, 12/6/83	16.48.010
11-1-77	64-348, § 1; Bill No. 83-66 § XIII, 12/6/83	16.48.020
11-1-78—11-1-86		Reserved
11-1-87	Bill No. 74-993 § 1, 6/18/74	16.56.010
11-1-88	Bill No. 74-993 § 2, 6/18/74	16.56.020
11-1-89	Bill No. 74-993 § 3, 6/18/74	16.56.030
11A-1-1	Bill No. 77-780 § 1, 2/7/77	Repealed by 95-1368
11A-1-2	Bill No. 77-780 § 1, 2/7/77	Repealed by 95-1368
11A-1-3	Bill No. 77-780 § 3, 2/7/77; Bill No. 82-1092 § I(A), 6/7/83	Repealed by 95-1368
11A-1-4	Bill No. 77-780 § 4, 2/7/77; Bill No. 82-818 § 1, 2/16/82	Repealed by 95-1368
11A-1-5	Bill No. 77-780 § 5, 2/7/77	Repealed by 95-1368
11A-1-6	Bill No. 77-780 § 6, 2/7/77	Repealed by 95-1368
11A-1-7(a), (b)	Bill No. 77-780 § 7, 2/7/77	Repealed by 95-1368
11A-1-7(c), (d)	Bill No. 77-780 § 7, 2/7/77	Repealed by 95-1368
11A-1-8	Bill No. 77-780 § 8, 2/7/77; Bill No. 82-818 § 2, 2/16/82	Repealed by 95-1368
11A-1-9	Bill No. 77-780 § 9, 2/7/77	Repealed by 95-1368
11A-1-10	Bill No. 77-780 § 10, 2/7/77; Bill No. 82-1092 § 1(G), 6/7/83	Repealed by 95-1368
11A-1-11	Bill No. 77-780 § 11, 2/7/77; Bill No. 82-1092 § 1(C), (F), 6/7/83	Repealed by 95-1368
11A-1-12	Bill No. 77-780 § 12, 2/7/77; Bill No. 82-1092 § 1(H), (I) 6/7/83	Repealed by 95-1368
11A-1-13	Bill No. 77-780 § 13, 2/7/77	Repealed by 95-1368
11A-1-14	Bill No. 77-780 § 14, 2/7/77	Repealed by 95-1368
11A-1-15	Bill No. 77-780 § 15, 2/7/77	Repealed by 95-1368
11A-1-16		Repealed by 95-1368
11A-1-17	Bill No. 77-780 § 16, 2/7/77	Repealed by 95-1368
11A-1-18	Bill No. 77-780 § 18, 2/7/77; Bill No. 82-1092 § 1(E), 6/7/83; Bill No. 83-1196 § 1, 5/17/83	Repealed by 95-1368

Prior Code §	Ordinance History	Herein
11A-1-19	Bill No. 77-780 § 19, 2/7/77; Bill No. 82-1092 § 1(B), 6/7/83	Repealed by 95-1368
11A-1-20	Bill No. 77-780 § 20, 2/7/77	Repealed by 95-1368
11A-1-21	Bill No. 77-780 § 21, 2/7/77; Bill No. 83-1197 §§ 1—5, 5/17/83; Bill No. 87-1822 § 1, 8/4/87	Repealed by 95-1368
11A-1-22	Bill No. 77-780 § 22, 2/7/77	Repealed by 95-1368
11A-1-23	Bill No. 77-780 § 23, 2/7/77	Repealed by 95-1368
11A-1-24	Bill No. 77-780 § 24, 2/7/77	Repealed by 95-1368
11A-1-25	Bill No. 77-780 § 25, 2/7/77	Repealed by 95-1368
11A-1-26(a), (b)	Bill No. 77-780 § 26, 2/7/77	Repealed by 95-1368
11A-1-26(c)	Bill No. 77-780 § 26, 2/7/77	Repealed by 95-1368
11A-1-27	Bill No. 77-780 § 27, 2/7/77	Repealed by 95-1368
11A-1-28	Bill No. 77-780 § 28, 2/7/77	Repealed by 95-1368
11A-1-29	Bill No. 77-780 § 29, 2/7/77	Repealed by 95-1368
11A-1-30	Bill No. 77-780 § 30, 2/7/77	Repealed by 95-1368
11A-1-31	Bill No. 77-780 § 31, 2/7/77	Repealed by 95-1368
11A-1-32	Bill No. 77-780 § 32, 2/7/77	Repealed by 95-1368
11A-1-33	Bill No. 77-780 § 33, 2/7/77	Repealed by 95-1368
11A-1-34	Bill No. 77-780 § 35, 2/7/77	Repealed by 95-1368
11A-1-35—11A-1-50		Reserved
11A-1-51	Bill No. 79-1212 § 1, 4/3/79	Repealed by 93-688
11A-1-52	Bill No. 79-1212 § 2, 4/3/79	Repealed by 93-688
11A-1-53	Bill No. 79-1212 § 3, 4/3/79	Repealed by 93-688
11A-1-54	Bill No. 79-1212 § 4, 4/3/79	Repealed by 93-688
12-1-1		2.56.020
12-1-2	72-136, § 1	2.56.030
12-1-3	72-136, § 2	2.56.040
12-1-3.1	Bill No. 83-1158 § 1, 4/5/83	2.56.010
12-1-4	63-44, § 1	1.16.010
12-1-5	63-44, § 2	1.16.020
12-1-6	63-44, § 4	1.16.030
12-1-7	63-44, § 5	1.16.040
12-1-8	63-44, § 6	1.16.050
12-1-9	68-444, § 1	1.16.070
12-1-10	68-444, § 2	1.16.060
12-1-11	69-904, § 5	2.56.200
12-1-12	69-904, § 6	2.56.210
12-1-13	Bill No. 70-1183 § 1; 71-1461, § 1; Bill No. 72-327 § 1, 11/8/72; Bill No. 72-429 § 1, 2/6/73	2.56.060
12-1-13.1		Reserved
12-1-14	70-1183, § 2	2.56.070
12-1-15	70-1183, § 3	2.56.080
12-1-16	70-1183, § 4	2.56.090
12-1-17	Bill No. 76-265 §§ 1—3, 10/5/76; Bill No. 83-1277, §§ 1, 2, 6/20/83	1.24.030
12-1-18	Bill No. 70-1183 § 7; Bill No. 72-429 § 1, 2/6/73	2.56.050
12-1-19	70-1205, § 1	2.56.140
12-1-20	70-1205, § 2	2.56.160
12-1-21	70-1205, § 3	2.56.180
12-1-22	70-1205, § 4	2.56.190
12-1-23	70-1205, § 5	2.56.150
12-1-24	70-1205, § 7	2.56.170
12-1-25—12-1-34		Reserved
12-1-35	Bill No. 76-116 § 1, 7/20/76	2.56.100
12-1-36	Bill No. 76-116 § 2, 7/20/76	2.56.110
12-1-37	Bill No. 76-116 § 3, 7/20/76	2.56.120

Prior Code §	Ordinance History	Herein
12-1-38	Bill No. 76-116 § 4, 7/20/76	2.56.130
13-1-1	66-873, § 1	1.12.010
13-1-2	66-37, § 1	Repealed by 90-1339
13-1-3	66-873, § 1	1.12.040
13-1-4	66-873, § 4	1.12.060
13-1-5	66-873, § 2	1.12.020
13-1-6	66-873, § 2	1.12.030
13-1-7	66-873, § 3	1.12.050
14-1-1	69-839	16.20.010
14-1-2	69-839	16.20.020
14-1-3	69-839	16.20.030
14-1-4	69-839; Bill No. 85-735 § 1, 5/21/85	16.20.040
14-1-5	69-839	16.20.060
14-1-6	69-839	16.20.080
14-1-7	69-839	16.20.090
14-1-8	69-839	16.20.100
14-1-9	69-839	16.20.110
14-1-10	69-839	16.20.050
14-1-11	69-839	16.20.070
14-1-12		Repealed by 76-292
14-1-13	69-839	16.20.120
14-1-14	69-839	16.20.130
14-1-15	69-839	2.76.010
14-1-16	69-839; 70-1098, § 1; 71-1408, § 1	2.76.020
14-1-17	69-839	2.76.030
14-1-18	69-839	2.76.040
14-1-19	69-839	2.76.050
14-1-20	69-839; 71-1408, § 1	2.76.060
14-1-21	69-839	2.76.070
14-1-22	69-839; 71-1408, § 1	2.76.080
14-1-23	69-839	2.76.090
14-1-24	69-839; 71-1408, § 1; Bill No. 72-291, Art. II, 8/15/72	2.76.100
14-1-25	69-839	2.76.110
14-1-26	69-839	2.76.120
14-1-27	69-839	2.76.130
14-1-28	69-839	2.76.140
14-1-29		Reserved
14-1-29.1		Repealed by 96-321
14-1.29.2	Bill No. 87-1912 § 2, 8/1/8/87	16.20.150
14-1-30	69-839	16.20.160
14-1-31	69-839	16.20.170
14-1-32	69-839	16.20.190
14-1-33	69-839; Bill No. 85-735 § 2, 5/21/85	16.20.200
14-1-34	69-839	16.20.180
14-1-35	69-839	16.20.210
14-1-35.1		16.20.215
14-1-36	69-839	16.20.220
14-1-37	69-839	16.20.230
14-1-38	69-839	16.20.240
14-1-39	69-839; Bill No. 79-1350 § 3, 6/5/79; Bill No. 87-1912 § 3, 8/18/87	16.20.250
14-1-40	69-839; Bill No. 79-1350 § 7, 6/5/79	16.20.260
14-1-41	69-839	16.20.270
14-1-42	69-839	16.20.280

Prior Code §	Ordinance History	Herein
14-1-43	69-839	16.20.290
14-1-44	69-839	16.20.300
14-1-45	69-839	16.20.310
14-1-46	69-839	16.20.320
14-1-47	69-839	16.20.330
14-1-48	69-839	Repealed by 98-1445
14-1-49	69-839	16.20.350
14-1-50	69-839	16.20.360
14-1-51	69-839	16.20.370
14-1-52	69-839	16.20.380
14-1-53	69-839; Bill No. 79-1350 § 8, 6/5/79	16.20.410
14-1-54	69-839	16.20.390
14-1-55	69-839	16.20.400
14-1-56	69-839	16.20.420
14-1-57	69-839	16.20.440
14-1-58	69-839	16.20.450
14-1-59	69-839	16.20.430
14-1-60	69-839; 71-1408, § 1	6.20.010
14-1-61	69-839; 71-1408, § 1	6.20.020
14-1-62	69-839; 71-1408, § 1	6.20.030
14-1-62.1		6.20.125
14-1-63	69-839; 71-1408, § 1; Bill No. 73-566 § 1, 6/19/73	6.20.040
14-1-64	69-839; 71-1408, § 1	6.20.050
14-1-65	69-839; 71-1408, § 1	6.20.060
14-1-66	69-839	6.20.070
14-1-67	69-839; 71-1408, § 1; Bill No. 72-291 Art. I, 8/15/72	6.20.080
14-1-68	69-839; 71-1408, § 1	6.20.090
14-1-69	69-839; 71-1408,; Bill No. 79-1350 § 8, 6/5/79	6.20.100
14-1-70	69-839	6.20.110
14-1-71	69-839; 71-1408, § 1	6.20.120
14-1-72	69-839; 71-1408, § 1	6.20.130
14-1-73	69-839; 71-1408, § 1	6.20.140
14-1-74	69-839; 71-1408, § 1; Bill No. 87-1912 § 4, 8/18/87	6.20.150
14-1-75	69-839; 71-1408, § 1	6.20.160
14-1-76	69-839; 71-1408, § 1	6.20.170
14-1-77	69-839	6.20.180
14-1-78	69-839	Repealed by 91-1558
14-1-79	69-839; 71-1408, § 1	6.20.200
14-1-80	69-839	6.20.210
14-1-81	69-839	6.20.220
14-1-82	69-839	Repealed by 91-1558
14-1-83	69-839; 71-1408, § 1	6.20.240
14-1-84		6.20.250
14-1-85		6.20.260
14-1-86		6.20.270
14-1-87		6.20.280
14-1-88—14-1-94		Reserved
14-1-95		6.20.360
14-1-101	65-480, § 1	6.40.010
14-1-102	65-480, § 2	6.40.030
14-1-103	65-480, § 4; Bill No. 79-1350 § 5, 6/5/79	6.40.040
14-1-104	65-408, § 3	6.40.020
14-1-105	65-408, § 5; Bill No. 79-1350 § 6, 6/5/79	6.40.050
14A-1-1	68-494, § 2	11.20.020

Prior Code §	Ordinance History	Herein
14A-1-2	68-494, § 1	11.20.010
14A-1-3	68-494, § 3	11.20.030
14A-1-4	68-494, § 4	11.20.040
14A-1-5	68-494, § 5	11.20.050
14A-1-6	68-494, § 6	11.20.060
14A-1-7	68-494, § 7	11.20.070
14A-1-8	68-494, § 8	11.20.080
14A-1-9	68-494, § 9	11.20.090
14A-1-10	68-494, § 10	11.20.100
14A-1-11	68-494, § 11	11.20.110
14A-1-12	68-494, § 12	11.20.120
14A-1-13	Bill No. 65-446 §§ 1—4, 3/16/64	2.172.010
15-1-1	63-91, §§ 1, 2	2.12.010
15-1-2	63-130, § 1	2.12.020
15-1-2.1	Bill No. 84-472 § 1, 10/2/84	5.04.010
15-1-3	63-4, § 1	2.24.010
15-1-4	63-4, § 1	2.24.020
15-1-5(a)	63-4, § 1	2.24.030
15-1-5(b)	63-4, § 1	2.24.040
15-1-5(c)	63-4, § 1	2.24.050
15-1-5(d)	63-4, § 1	2.24.060
15-1-5(e)	63-4, § 1	2.24.070
15-1-5(f)	63-4, § 1	2.24.080
15-1-6	63-4, § 2	2.24.090
15-1-7	63-4, § 3	2.24.100
15-1-8		Repealed by 72-109
15-1-9	63-21, § 1	2.24.150
15-1-10	63-21, § 2	2.24.160
15-1-11	63-21, § 3	2.24.170
15-1-12	63-21, § 8	2.24.180
15-1-13	63-21, § 9	2.24.190
15-1-14	63-21, § 10	2.24.200
15-1-15		Repealed by 96-308
15-1-15.1		Reserved
15-1-16	63-20, § 1	Repealed by 92-210
15-1-17	63-20, § 2	Repealed by 92-210
15-1-18	63-20, § 5; 70-1184, § 1; Bill No. 75-1199 § 1, 4/1/75; Bill No. 77-762 § 1, 1/17/78; Bill No. 80-122 § 1, 2/19/80	Repealed by 92-210
15-1-19	63-20, § 6	Repealed by 92-210
15-1-20	63-20, § 7	Repealed by 92-210
15-1-21	63-20, § 8	Repealed by 92-210
15-1-22	63-20, § 9	Repealed by 92-210
15-1-23	63-20, § 9; 67-276, § 1; Bill No. 75-1198 § 1, 4/1/75	Repealed by 92-210
15-1-24	63-20, § 10; 65-574, § 1	Repealed by 92-210
15-1-25	63-20, § 11	Repealed by 92-210
15-1-25.1	70-1282, § 1	Repealed by 92-210
15-1-25.2	Bill No. 83-1284 § 2, 7/19/83	Repealed by 93-687
15-1-25.3	Bill No. 83-1284 § 3, 7/19/83	Repealed by 93-687
15-1-25.4	Bill No. 83-1284 § 4, 7/19/83	Repealed by 93-687
15-1-25.5	Bill No. 83-1284 § 5, 7/19/83	Repealed by 93-687
15-1-26	Code 1960, § 9-1; 60-135, § 1	5.08.010
15-1-27	Code 1960, § 9-2	5.08.020
15-1-28	Bill No. R80-140 § 1, 3/18/80	5.08.030, 5.08.040
15-1-29—15-1-31		Reserved

Prior Code §	Ordinance History	Herein
15-1-31.1	Bill No. 79-1295, §§ 1, 2, 4/17/79	5.08.050
15-1-32	63-9, § 1	5.20.010
15-1-33	63-9, § 2	5.20.020
15-1-34	63-9, § 3	5.20.030
15-1-35	63-9, § 3	5.20.040
15-1-36	63-9, § 3	5.20.070
15-1-37	63-9, § 4	5.20.050
15-1-38	63-9, § 5	5.20.060
15-1-39	68-525, § 1; Bill No. 83-1340 §§ 2—4, 8/2/83	5.28.010
15-1-40		5.28.020
15-1-41	68-525, § 1	5.28.030
15-1-42	68-525, § 1	5.28.060
15-1-43	68-525, § 3	5.28.040
15-1-44	68-525, § 4	5.28.050
15-1-45	Bill No. 76-143 § 1, 5/18/76	5.12.010
15-1-46	Bill No. 76-143 § 2, 5/18/76; Bill No. 82-858 § 1, 3/22/82	5.12.020
15-1-47	Bill No. 76-143 § 3, 5/18/76	5.12.040
15-1-48	Bill No. 76-143 § 4, 5/18/76	5.12.050
15-1-49	Bill No. 76-143 § 5, 5/18/76	5.12.080
15-1-50	Bill No. 76-143 § 6, 5/18/76	5.12.090
15-1-51	Bill No. 76-143 § 7, 5/18/76	5.12.070
15-1-52	Bill No. 76-143 § 8, 5/18/76	5.12.100
15-1-53(a)	Bill No. 76-143 § 9, 5/18/76; Bill No. 76-306 § 1, 12/7/76	2.148.010
15-1-53(b)	Bill No. 76-143 § 9, 5/18/76; Bill No. 76-306 § 1, 12/7/76	Repealed by 94-968
15-1-53(c)	Bill No. 76-143 § 9, 5/18/76; Bill No. 76-306 § 1, 12/7/76	2.148.030
15-1-54	Bill No. 76-143 § 10, 5/18/76; Bill No. 82-858 § 1, 3/22/82	5.12.060
15-1-55	Bill No. 76-143 § 11, 5/18/76	5.12.030
15-1-56	Bill No. 76-143 § 11.1, 5/18/76; Bill No. 82-858 § 3, 3/22/82	Repealed by 90-1339
15-2-1	Code 1960, § 36-29	5.40.010
16-1-1	Bill No. 74-990 § 1, 2/4/75	Repealed by 94-1117
16-1-1.1	Bill No. 77-521 § 1, 6/28/77	2.28.020
16-1-2	Bill No. 74-1134 §§ 1—4, 10/18/74; Bill No. 74-1162 §§ 1, 2, 12/17/74; Bill No. 75-32 §1, 12/9/75	2.28.030
16-1-2.1	Bill No. 77-567 § 1, 6/28/77; Bill No. 79-1266 § 1, 4/6/79	2.28.040
16-1-2.2	Bill No. 79-32 § 1, 12/18/79	2.28.050
16-1-3	Bill No. 74-990 § 2, 2/4/75	Not codified
16-1-4	Bill No. 74-990 § 3, 2/4/75	2.28.080
16-1-5	Bill No. 74-990 § 4, 2/4/75	2.28.090
16-1-6	Bill No. 82-932 § 1, 6/29/82	2.28.100
16-1-7	Bill No. 87-86 §§ 1, 2, 12/10/87	2.28.060
16-1-8	Bill No. 88-217 §§ 1—4, 4/5/88	2.28.110
16-1-9		Reserved
16-1-10	Code 1960, § 13-10	2.28.130
16-1-11	Code 1960, § 13-11	2.28.140
16-1-12	Code 1960, § 13-12	2.28.150
16-1-13	Code 1960, § 13-13; Bill No. 74-1158 § 1, 1/21/75	2.28.170
16-1-14	Code 1960, § 13-14; Bill No. 74-1158 § 2, 1/21/75	2.28.180
16-1-15	Code 1960, § 13-17	2.28.120
16-1-16	Code 1960, § 13-17	2.28.160
16-1-17	Code 1960, § 13-18	2.28.190
16-1-18	Code 1960, § 13-19	2.28.200
16-1-19	Code 1960, § 13-21	2.28.210
16-1-20—16-1-30		Reserved
16-1-31	Bill No. 88-466 § 1, 10/4/88	2.28.220

Prior Code §	Ordinance History	Herein
16-1-32	Bill No. 88-466 § 2, 10/4/88	2.28.240
16-1-33	Bill No. 88-466 § 3, 10/4/88	2.28.250
16-1-34	Bill No. 88-466 § 4, 10/4/88	2.28.260
16-1-35	Bill No. 88-466 § 5, 10/4/88	2.28.230
16-2-1	Code 1960, § 13-4	10.80.020
16-2-2	Bill No. 77-521 § 2, 6/28/77	10.80.010
17-1-1	Bill No. 76-204 § 1, 8/3/76; Bill No. 83-1199 § 1, 5/17/83; Bill No. 85-883 § 1, 9/17/85; Bill No. 86-1198 §§ 1, 2, 5/20/86	Repealed by 94-1245
17-1-1.1		Reserved
17-1-1.2(a)	Bill No. 75-1220 §§ 1—4, 4/1/75	10.64.020
17-1-1.2(b)	Bill No. 75-1220 §§ 1—4, 4/1/75	10.64.030
17-1-1.2(c)	Bill No. 75-1220 §§ 1—4, 4/1/75	10.64.040
17-1-1.2(d)	Bill No. 75-1220 §§ 1—4, 4/1/75	Repealed by 95-1329
17-1-2—17-1-9		Reserved
17-1-10	Bill No. 83-55 § 1, 12/6/83	Repealed by 90-1273
17-1-11	Bill No. 83-55 § 2, 12/6/83	Repealed by 90-1273
17-1-12	Bill No. 83-55 § 3, 12/6/83	Repealed by 90-1273
17-1-13	Bill No. 83-55 § 4, 12/6/83	Repealed by 90-1273
17-1-14	Bill No. 83-55 § 5, 12/6/83	Repealed by 90-1273
17-1-15	Bill No. 83-55 § 6, 12/6/83	Repealed by 90-1273
17-1-16	Bill No. 83-55 § 7, 12/6/83	Repealed by 90-1273
17-1-17	Bill No. 83-55 § 8, 12/6/83	Repealed by 90-1273
17-1-18—17-1-30		Reserved
17-1-31	Bill No. 83-1201 § 1, 6/21/83	10.68.010
17-1-32	Bill No. 83-1201 § 2, 6/21/83	10.68.020
17-1-33	Bill No. 83-1201 § 3, 6/21/83	10.68.030
17-1-34	Bill No. 83-1201 § 4, 6/21/83	10.68.040
17-1-35	Bill No. 83-1201 § 5, 6/21/83	10.68.050
17-1-36	Bill No. 83-1201 § 6, 6/21/83	10.68.060
17-1-37	Bill No. 83-1201 § 7, 6/21/83	10.68.070
17-1-38	Bill No. 83-1201 § 8, 6/21/83	10.68.090
17-1-39	Bill No. 83-1201 § 9, 6/21/83	10.68.080
17-1-40—17-1-50		Reserved
17-1-51	Bill No. 88-307 § 1, 10/4/88	15.68.010
17-1-52	Bill No. 88-307 § 2, 10/4/88	15.68.020
17-1-53	Bill No. 88-307 § 3, 10/4/88	15.68.030
17-1-54	Bill No. 88-307 § 4, 10/4/88	15.68.040
18-1-1	66-928, § 26	Repealed by 90-1339
18-1-2	66-928, § 27	Repealed by 90-1339
18-1-3	66-928, § 27	Repealed by 90-1339
18-1-4	66-928, § 28	Repealed by 90-1339
18-1-5	66-928, § 29	Repealed by 90-1339
18-1-6	66-928, § 30	Repealed by 90-1339
18-1-7	66-928, § 31	Repealed by 90-1339
18-1-8	66-928, § 32	Repealed by 90-1339
18-1-9	66-928, § 36	Repealed by 90-1339
18-1-10	66-928, § 33	Repealed by 90-1339
18-1-11	66-928, § 34	Repealed by 90-1339
18-1-12	66-928, § 35	Repealed by 90-1339
18-1-13	64-217, § 1	Repealed by 90-1339
19-1-1		16.16.010
19-1-2		16.16.020
19-1-3		16.16.030
19-1-4		16.16.040

Prior Code §	Ordinance History	Herein
19-1-5		16.16.050
19-1-6		16.16.060
19-1-7		16.16.070
19-1-8		16.16.080
19-1-9		16.16.090
19-1-10		16.16.100
19-1-11		16.16.110
19-1-11.1		16.16.120
19-1-12		16.16.130
19-1-13		16.16.140
19-1-14		16.16.150
19-1-15		16.16.160
19-1-16		16.16.170
19-1-17—19-1-19		Number not used
19-1-20		2.84.010
19-1-21		2.84.020
19-1-22		2.84.030
19-1-23		2.84.040
19-1-24		2.84.050
19-1-25		2.84.060
19-1-26		2.84.090
19-1-27		2.84.070
19-1-28		2.84.080
19-1-29		2.84.100
19-1-30		2.84.110
19-1-31		2.84.120
19-1-32		2.84.130
19-1-33—19-1-39		Number not used
19-1-40		16.16.180(A)
19-1-40.1		16.16.180(B), (C)
19-1-40.2		16.16.190(A)
19-1-40.3		16.16.190(B)
19-1-40.4		16.16.190(C)
19-1-40.5		16.16.190(D)
19-1-40.6		16.16.190(E)
19-1-41		16.16.200
19-1-41.1		16.16.200
19-1-41.1.1		16.16.210
19-1-41.1.2		16.16.220, 16.20.150
19-1-41.2		16.16.230
19-1-41.3		16.16.240
19-1-41.4		16.16.250
19-1-41.5		16.16.260
19-1-42		16.16.270
19-1-42.1		16.16.280
19-1-42.2		16.16.290
19-1-43		16.16.300
19-1-44		16.16.310
19-1-45		16.16.320(A)
19-1-45.1		16.16.320(B)
19-1-45.2		16.16.320(C)
19-1-45.3		16.16.320(D)
19-1-45.4		16.16.320(E)
19-1-45.5		16.16.320(F)

Prior Code §	Ordinance History	Herein
19-1-46		16.16.330
19-1-47—19-1-54		Number not used
19-1-55		16.16.340
19-1-56		16.16.350
19-1-57		16.16.360
19-1-58		16.16.370(A)—(C)
19-1-58.1		16.16.370(D)
19-1-59		16.16.380
19-1-60		16.16.390
19-1-61		16.16.400
19-1-62		16.16.410
19-1-63		16.16.420
19-1-64		16.16.430
19-1-65		16.16.440
19-1-66		16.16.450
19-1-67		16.16.460
19-1-67.1		16.16.470
19-1-68		16.16.480
19-1-69—19-1-72		Number not used
19-1-73		16.16.500
19-1-74		16.16.490
19-1-75		16.16.520
19-1-76		16.16.530
19-1-77		16.16.510
19-1-78		16.16.540
19-1-79		16.16.550
19-1-80		16.16.560
19-1-81		16.16.570
19-1-82		16.16.580
19-1-83—19-1-89		Number not used
19-1-90		16.16.590
19-1-91		16.16.600
19-1-92		16.16.610
19-1-93		16.16.620
19-1-93.1		16.16.630
19-1-94		16.16.640
19-1-95		16.16.650
19-1-96		16.16.660
19-1-97		16.16.670
19-1-98		16.16.680
19-1-99		16.16.690
19-1-100		16.16.700
19-1-101		16.16.710
19-1-102		16.16.720
19-1-103		16.16.730
19-1-104—19-1-107		Number not used
19-1-108		16.16.740
19-1-109		16.16.750
19-1-110		16.16.760
19-1-111—19-1-115		Number not used
19-1-116		16.16.770
19-1-117		16.16.780
19-1-118		16.16.790
19-1-119		16.16.810

Prior Code §	Ordinance History	Herein
19-1-120		16.16.800
19-1-121		16.16.820
19-1-122		16.16.830
19-1-123—19-1-129		Number not used
19-1-130		16.16.840
19-1-130.1		16.16.850
19-1-130.2		16.16.860
19-2-1	Code 1960, § 14-166	Repealed by 90-1253
19-2-2	Code 1960, § 14-167	Repealed by 90-1253
19-2-3	Code 1960, § 14-168	Repealed by 90-1253
19-2-4	Code 1960, § 14-169	Repealed by 90-1253
19-2-5	Code 1960, § 14-170	Repealed by 90-1253
19-2-6	Code 1960, § 14-171	Repealed by 90-1253
19-2-7	Code 1960, § 14-172	Repealed by 90-1253
19-2-8	Code 1960, § 14-173	Repealed by 90-1253
19-2-9	Code 1960, § 14-174	Repealed by 90-1253
20-1-1	63-67, § 1.101	2.36.010, 10.08.010, 10.12.010, 10.16.010, 10.32.010, 10.36.010, 10.40.010, 10.44.010, 10.48.010, 10.52.010
20-1-2	63-61, § 1.201	2.36.020
20-1-3	63-61, § 1.202	2.36.110
20-1-4	63-61, § 1.203	2.36.060
20-1-5	63-61, § 1.204	2.36.190
20-1-6	63-61, § 1.205	2.36.070
20-1-7	63-117, §§ 1, 2	2.36.080
20-1-7.1	Bill No. 72-378 § 1, 11/21/72	2.36.090
20-1-8	63-61, § 1; Bill No. 78-1154 § 1, 12/19/78	2.36.100
20-1-9	63-61, § 1.207	2.36.140
20-1-10	63-61, § 1.208	2.36.120
20-1-11	63-61, § 1.209	2.36.180
20-1-12	63-61, § 1.210	2.36.170
20-1-13	63-61, § 1.211	2.36.160
20-1-14	63-61, § 1.212	2.36.150
20-1-15	63-61, § 1.213	2.36.130
20-1-16	63-61, § 1.214	2.36.050
20-1-17	63-61, § 1.215	2.36.030
20-1-18	63-61, § 1.215	2.36.040
20-1-19	63-61, § 2.101	10.16.020
20-1-20	63-61, § 2.102	10.16.030
20-1-21	63-61, § 2.103	10.16.040
20-1-22	63-61, § 2.104	10.16.060
20-1-23	63-61, § 2.105	10.16.070
20-1-24	63-61, § 2.106	10.16.050
20-1-25	63-61, § 2.107	10.16.080
20-1-26	63-61, § 2.108	10.16.100
20-1-27	63-61, § 2.109	10.16.110
20-1-28	63-61, § 2.110	10.16.120
20-1-29	63-61, § 2.111	10.16.130
20-1-30	63-61, § 2.112	10.16.140
20-1-31	63-61, § 2.113	10.16.150
20-1-32	63-61, § 2.114	10.16.160
20-1-33	63-61, § 2.115	10.16.170

Prior Code §	Ordinance History	Herein
20-1-34	63-61, § 2.116	10.16.180
20-1-35	63-61, § 2.117	10.16.190
20-1-36	63-61, § 2.118	10.16.200
20-1-37	63-61, § 2.119	10.16.210
20-1-38	63-61, § 2.120	10.16.250
20-1-39	63-61, § 2.121	10.16.240
20-1-40	63-61, § 2.122	10.16.220
20-1-41	63-61, § 2.123	10.16.090
20-1-42	63-61, § 2.124; 69-901, § 1	10.16.230
20-1-43	63-61, § 3.101	Repealed by 90-1339
20-1-44	63-61, § 3.102	Repealed by 90-1339
20-1-45	63-61, § 3.103	Repealed by 90-1339
20-1-46		Repealed by 90-1339
20-1-47	63-61, § 3.105	Repealed by 90-1339
20-1-48	63-61, § 3.106	Repealed by 90-1339
20-1-49	63-61, § 3.107	Repealed by 90-1339
20-1-50	63-61, § 3.108	Repealed by 90-1339
20-1-51	63-61, § 3.109	Repealed by 90-1339
20-1-52	63-61, § 3.110	Repealed by 90-1339
20-1-53	63-61, § 3.111	Repealed by 90-1339
20-1-54	63-61, § 3.112	Repealed by 90-1339
20-1-55	63-61, § 3.113	Repealed by 90-1339
20-1-56	63-61, § 3.114	Repealed by 90-1339
20-1-57	63-61, § 3.115	Repealed by 90-1339
20-1-58	63-61, § 3.116	Repealed by 90-1339
20-1-59	63-61, § 3.117	Repealed by 90-1339
20-1-60	63-61, § 3.118	Repealed by 90-1339
20-1-61	63-61, § 3.119	Repealed by 90-1339
20-1-62	63-61, § 3.120	Repealed by 90-1339
20-1-63	63-61, § 3.121	Repealed by 90-1339
20-1-64	63-61, § 3.122	Repealed by 90-1339
20-1-65	63-61, § 3.123	Repealed by 90-1339
20-1-66	63-61, § 3.124	Repealed by 90-1339
20-1-67	63-61, § 3.125	Repealed by 90-1339
20-1-68	63-61, § 3.126	Repealed by 90-1339
20-1-69	63-61, § 3.127	Repealed by 90-1339
20-1-70	63-61, § 3.128	Repealed by 90-1339
20-1-71	63-61, § 3.129	Repealed by 90-1339
20-1-72	63-61, § 3.130	Repealed by 90-1339
20-1-73	63-61, § 3.131	Repealed by 90-1339
20-1-74	63-61, § 3.132	Repealed by 90-1339
20-1-75	63-61, § 3.201	Repealed by 90-1339
20-1-76	63-61, § 3.202	Repealed by 90-1339
20-1-77	63-61, § 3.203	Repealed by 90-1339
20-1-78	63-61, § 3.204	Repealed by 90-1339
20-1-79	63-61, § 3.205	Repealed by 90-1339
20-1-80	63-61, § 3.206	Repealed by 90-1339
20-1-81	63-61, § 3.207	Repealed by 90-1339
20-1-82	63-61, § 3.208	Repealed by 90-1339
20-1-83	63-61, § 3.209	Repealed by 90-1339
20-1-84	63-61, § 3.210	Repealed by 90-1339
20-1-85	63-61, § 3.211	Repealed by 90-1339
20-1-86	63-61, § 3.212	Repealed by 90-1339
20-1-87	63-61, § 3.213	Repealed by 90-1339

Prior Code §	Ordinance History	Herein
20-1-88	63-61, § 3.214	Repealed by 90-1339
20-1-89	63-61, § 3.215	Repealed by 90-1339
20-1-90	63-61, § 3.216	Repealed by 90-1339
20-1-91	63-61, § 3.217	Repealed by 90-1339
20-1-92	63-61, § 3.218	Repealed by 90-1339
20-1-93	63-61, § 3.219	Repealed by 90-1339
20-1-94	63-61, § 3.220	Repealed by 90-1339
20-1-95	63-61, § 3.221	Repealed by 90-1339
20-1-96	63-61, § 3.222	Repealed by 90-1339
20-1-97	63-61, § 3.223	Repealed by 90-1339
20-1-98	63-61, § 3.224	Repealed by 90-1339
20-1-99	63-61, § 3.225	Repealed by 90-1339
20-1-100	63-61, § 3.301	Repealed by 90-1339
20-1-101	63-61, § 3.302	Repealed by 90-1339
20-1-102	63-61, § 3.303	Repealed by 90-1339
20-1-103	63-61, § 3.304	Repealed by 90-1339
20-1-104	67-202, § 1	Repealed by 90-1339
20-1-105	67-202, § 2	Repealed by 90-1339
20-1-106	67-202, § 3	Repealed by 90-1339
20-1-107	67-202, § 4	Repealed by 90-1339
20-1-108	67-202, § 5	Repealed by 90-1339
20-1-109	67-202, § 6	Repealed by 90-1339
20-1-110		Repealed by 90-1339
20-1-111	67-202, § 8	Repealed by 90-1339
20-1-112	67-202, § 9	Repealed by 90-1339
20-1-113	67-202, § 10	Repealed by 90-1339
20-1-114	67-202, § 11	Repealed by 90-1339
20-1-115	67-202, § 12	Repealed by 90-1339
20-1-116	67-202, § 13	Repealed by 90-1339
20-1-117	67-202, § 14	Repealed by 90-1339
20-1-117.1	67-202, § 15	Repealed by 90-1339
20-1-118	63-61, § 3.501	Repealed by 90-1339
20-1-119	63-61, § 3.502	Repealed by 90-1339
20-1-120	63-61, § 3.503	Repealed by 90-1339
20-1-121	63-61, § 3.504	Repealed by 90-1339
20-1-122	63-61, § 3.505	Repealed by 90-1339
20-1-123	63-61, § 3.506	Repealed by 90-1339
20-1-124	63-61, § 3.507	Repealed by 90-1339
20-1-125	63-61, § 3.508	Repealed by 90-1339
20-1-126	63-61, § 3.509	Repealed by 90-1339
20-1-127	63-61, § 3.510	Repealed by 90-1339
20-1-128	63-61, § 3.511	Repealed by 90-1339
20-1-129	63-61, § 3.512	Repealed by 90-1339
20-1-130	63-61, § 3.513	Repealed by 90-1339
20-1-131	63-61, § 3.514	Repealed by 90-1339
20-1-132	63-61, § 3.601	10.08.010, 10.08.020
20-1-133	63-61, § 3.602	10.08.040
20-1-134	63-61, § 3.603	10.08.030
20-1-135	63-61, § 3.604	Repealed by 90-1339
20-1-136	63-61, § 3.605	Repealed by 90-1339
20-1-137	63-61, § 3.606	Repealed by 90-1339
20-1-138	63-61, § 3.607	Repealed by 90-1339
20-1-139	63-61, § 3.608	Repealed by 90-1339
20-1-140	63-61, § 3.609	10.12.020, 10.12.030

Prior Code §	Ordinance History	Herein
20-1-141	63-61, § 3.701	10.36.020
20-1-142	63-61, § 3.703	10.36.030
20-1-143	63-61, § 3.704	10.36.040
20-1-144	63-61, § 3.801	10.40.010
20-1-145	63-61, § 3.802	10.40.020
20-1-146	63-61, § 3.803	10.40.030
20-1-147	63-61, § 3.804	10.40.040
20-1-148	63-61, § 3.805	10.40.050
20-1-149	63-61, § 3.806	10.40.070
20-1-150	63-61, § 3.807	10.40.090
20-1-151	63-61, § 3.808	10.40.080
20-1-152	63-61, § 3.809	10.40.130
20-1-153	63-61, § 3.810	10.40.140
20-1-154	63-61, § 3.811	10.40.100
20-1-155	63-61, § 3.813	10.40.110
20-1-156	63-61, § 3.813	10.40.120
20-1-157	63-61, § 3.814	10.40.060
20-1-158	63-61, § 3.815	10.40.150
20-1-159	63-61, § 3.816	10.40.160
20-1-160	63-61, § 3.901	15.72.020
20-1-160.1	Bill No. 74-1093 § 1, 9/1/8/74	15.72.010
20-1-161	63-61, § 3.902	15.72.040
20-1-162	63-61, §§ 3.901, 3.903	15.72.050
20-1-163	63-61, § 3.902	15.72.060
20-1-164	70-1080, § 2	15.72.070
20-1-165	63-61, § 3.905	15.72.030
20-1-166	63-61, § 3.1001	10.32.010
20-1-167	63-61, § 3.1002	10.32.020
20-1-168	63-61, § 3.1003	10.32.060
20-1-169	63-61, § 3.1004	10.32.070
20-1-170	63-61, § 3.1005	10.32.090
20-1-171	63-61, § 3.1006	10.32.050
20-1-172	63-61, § 3.1007	10.32.080
20-1-173	63-61, § 3.1008	10.32.100
20-1-174	63-61, § 3.1010	10.32.030
20-1-175	63-61, § 3.1011	10.32.040
20-1-176	63-61, § 3.1012	10.32.110
20-1-177	63-61, § 3.1013	10.32.120
20-1-178	63-61, § 3.1014	10.32.130
20-1-179	63-61, § 3.1015; 69-1013, § 1	10.32.140
20-1-180	63-61, § 3.1016	10.32.150
20-1-181	63-61, § 3.1017	10.32.160
20-1-182	63-61, § 3.1018	10.32.170
20-1-183		10.48.010
20-1-184	65-545, § 1	10.48.020
20-1-185	65-545, § 1	10.48.030
20-1-186(a)	65-545, § 1	10.48.050(A)
20-1-186(b)	65-545, § 1	10.48.040
20-1-186(c)	65-545, § 1	10.48.050(B)
20-1-186(d)	65-545, § 1	10.48.050(C)
20-1-186(e)	65-545, § 1	10.48.050(D)
20-1-187	65-545, § 1	10.48.060
20-1-187.1	Bill No. 76-352 §§ 1—3, 12/21/76	10.48.070
20-1-188	65-545, § 1	10.48.120

Prior Code §	Ordinance History	Herein
20-1-189	65-545, § 1	10.48.080
20-1-190	65-545, § 1	10.48.110
20-1-191	65-545, § 1	10.48.100
20-1-192	65-545, § 1	10.48.090
20-1-193	63-61, § 3.1301	6.16.020
20-1-194	63-61, § 3.1302	6.16.040
20-1-195	63-61, § 3.1303	6.16.050
20-1-196	63-61, § 3.1304	6.16.030
20-1-197	63-61, § 3.1305	6.16.060
20-1-198	63-61, § 3.1306	6.16.080
20-1-199	63-61, § 3.1307	6.16.070
20-1-200	63-61, § 3.1308	6.16.090
20-1-201	63-61, § 3.1309	6.16.010
20-1-202	65-490	6.60.010
20-1-203	65-490	6.60.020
20-1-204	65-490	6.60.030
20-1-205	65-490	6.60.040
20-1-206	65-490	6.60.060
20-1-207	65-490	6.60.050
20-1-208	65-490	6.60.090
20-1-209	65-490	6.60.080
20-1-210	65-490	6.60.070
20-1-211	65-490	6.60.110
20-1-212	65-490	6.60.100
20-1-213	65-490	6.60.120
20-1-214	63-115, § 1	10.52.020
20-1-215	63-115, § 2	10.52.030
20-1-216	63-115, § 3	10.52.040
20-1-217	63-115, § 4	10.52.050
20-1-218	67-349, § 1	10.04.010
20-1-219	67-349, § 2	10.04.020
20-1-220	67-349, § 3	10.04.030
20-1-221	67-349, § 4	10.04.050
20-1-222	67-349, § 5	10.04.060
20-1-223	67-349, § 6	10.04.070
20-1-224	67-349, § 7	10.04.040
20-1-225	67-349, § 8	10.04.080
20-1-226	71-1450, § 1	10.44.010
20-1-227	71-1450, § 2	10.44.020
20-1-228	71-1450, § 3	10.44.030
20-1-229	71-1450, § 4	10.44.040
20-1-230	71-1450, § 5	10.44.050
20-1-231	71-1450, § 6	10.44.060
20-1-232	71-1450, § 7	10.44.080
20-1-233	71-1450, § 8	10.44.070
20-1-234	71-1450, § 9	10.44.090
20-1-235	71-1450, § 10	10.44.120
20-1-236	71-1450, § 11	10.44.100
20-1-237	71-1450, § 12	10.44.110
20-1-238	71-1450, § 13	10.44.130
20-1-239	71-1450, § 14	10.44.140
20-1-240	71-1450, § 16	10.44.150
21-1-1	64-233, §§ 1, 2	2.164.010
21-2-1		Reserved

Prior Code §	Ordinance History	Herein
21-2-2	Code 1960, § 17-1	10.72.010
21A-1-1	70-1241, § 1	Repealed by 90-1339
21A-1-2	70-1241, § 2	Repealed by 90-1339
21A-1-3	70-1241, § 3	Repealed by 90-1339
21A-1-4	70-1241, § 2	Repealed by 90-1339
21A-1-5	70-1241, § 4	Repealed by 90-1339
21A-1-6	70-1241, § 5	Repealed by 90-1339
21A-1-7	70-1241, § 6	Repealed by 90-1339
21A-1-8	70-1241, § 7	Repealed by 90-1339
21A-1-9	70-1241, § 8	Repealed by 90-1339
21A-1-10	70-1241, § 9	Repealed by 90-1339
21A-1-11	70-1241, § 11	Repealed by 90-1339
21A-1-12	70-1241, § 10	Repealed by 90-1339
22-1-1	64-350, § 1; Bill No. 79-1351 § 1, 6/5/79	Repealed by BL2001-585
22-1-2	64-350, Art. 1	Repealed by BL2001-585
22-1-3	64-350	Repealed by BL2001-585
22-1-4	64-350, § 3; 65-670, Art. 1	Repealed by BL2001-585
22-1-5	64-350, § 2	Repealed by BL2001-585
22-1-6	64-350, § 2	Repealed by BL2001-585
22-1-7	65-670, Art. 1	Repealed by BL2001-585
22-1-8	64-350, § 11	Repealed by BL2001-585
22-1-9	64-350, § 3	Repealed by BL2001-585
22-1-10	64-350, § 3	Repealed by BL2001-585
22-1-11	64-350, § 3; 65-670, Art. 1; Bill No. 79-1351 § 2, 6/5/79	Repealed by BL2001-585
22-1-12	64-350, § 3; 65-670, Art. 1	Repealed by BL2001-585
22-1-13	64-350, § 3; 65-670, Art. 1	Repealed by BL2001-585
22-1-14	64-350, § 3	Repealed by BL2001-585
22-1-15	64-350, § 3; Bill No. 79-1351 § 3, 6/5/79; Bill No. 84-575 § 1, 5/21/85	Repealed by BL2001-585
22-1-16	64-350, § 2; Bill No. 79-1351 § 4, 6/5/79	Repealed by BL2001-585
22-1-17	64-350, § 5; 65-670, Art. 1	Repealed by BL2001-585
22-1-18	64-350, § 6; 65-670, Art. 1; Bill No. 79-1351, §§ 5—8, 6/5/79; Bill No. 82-851 §1, 4/20/82	Repealed by BL2001-585
22-1-19	64-350, §7; 65-670, Art. 1; Bill No. 79-1351, § 9, 6/5/79	Repealed by BL2001-585
22-1-20	64-350, § 8; 65-670, Art. 1	Repealed by BL2001-585

Prior Code §	Ordinance History	Herein
22-1-21	64-350, § 9; 65-670, Art. 1; Bill No. 79-1351, § 10, 6/5/79	Repealed by BL2001-585
22-1-22	64-350, § 13	BL2001-585
22-1-23	64-350, § 10	Repealed by BL2001-585
22-1-24	64-350, § 10	Repealed by BL2001-585
22-1-25	64-350, § 10	Repealed by BL2001-585
22-1-26	64-350, § 10	Repealed by BL2001-585
22-1-27	64-350, § 10	Repealed by BL2001-585
22-1-28	64-350, § 10	Repealed by BL2001-585
22-1-29	64-350, § 10	Repealed by 98-1445
22-1-30	64-350, § 10	Repealed by BL2001-585
22-1-31	64-350, § 10	Repealed by BL2001-585
22-1-32	64-350, § 10	Repealed by BL2001-585
22-1-33	64-350, § 4	Repealed by BL2001-585
22-1-34	64-350, § 4; 65-670, Art. 1	Repealed by BL2001-585
22-1-35	64-350, § 4	Repealed by BL2001-585
22-1-36	64-350, § 4	Repealed by BL2001-585
22-1-37	64-350, § 4	Repealed by BL2001-585
22-1-38	64-350, § 4	Repealed by BL2001-585
22-1-39	64-350, § 4	Repealed by BL2001-585
22-1-40	64-350, § 4	Repealed by BL2001-585
22-1-41	64-350, § 4	Repealed by BL2001-585
22-1-42	Bill No. 79-1351 § 11, 6/5/79	Repealed by BL2001-585
23-1-1	Bill No. 78-1110 §§ 1—3, 12/5/78	6.32.020
23-1-2	Bill No. 88-290 § 1, 6/7/88	6.32.030
23-2-1	Code 1960 § 19-1	6.104.010
23-2-2	Code 1960 § 19-2	6.104.020
23-2-3	Code 1960 § 19-4	6.104.030
23-2-4	Code 1960 § 19-5	6.104.040
23-2-5	Code 1960 § 19-6	Repealed by 98-1191
24-1-1	67-129, § 1	5.16.010
24-1-2	67-129, § 2	5.16.020
24-1-3	67-129, § 1	5.16.030
24-1-4	67-129, § 3	5.16.040
24-1-5—24-1-7		Repealed by 71-1515

Prior Code §	Ordinance History	Herein
24-1-7.1	67-327, §§ 1, 2	5.16.050
24-1-8—24-1-62		Repealed by 71-1515
24-1-63	67-129, § 1	5.16.060
24-1-64		Repealed by 71-1515
24-1-65	67-129 § 1; Bill No. 81-693, 10/6/81	5.16.070
24-1-66—24-1-67		Repealed by 71-1515
24-1-68	Amended, Ord. 71-1515	Repealed by 90-1339
24-1-69—24-1-115		Repealed by 71-1515
24-1-116	64-250, § 1; Bill No. 83-1281 § 1, 6/21/83; Bill No. 84-329 § 1, 6/5/84	5.32.010, 5.32.020
24-1-117	65-250, § 2; Bill No. 80-261 § 1, 6/26/80	5.32.030
24-1-118	64-250, § 3; Bill No. 73-690 § 1, 10/2/73	5.32.040
24-1-119	64-250, § 3	5.32.070
24-1-120	64-250, § 5	5.32.060
24-1-121	64-250, § 6; Bill No. 73-758 § 1, 12/11/73	5.32.050
24-1-122	64-250, § 4; 64-356, § 1	5.32.080
24-1-123	70-1159 § 1; Bill No. 72-210 § 1, 7/5/72; Bill No. 79-59, § 1, 12/4/79	5.32.090
24-1-124	70-1159, § 2; Bill No. 85-943 § 1, 10/1/85	5.32.100
24-1-125	70-1159, § 3; Bill No. 80-259 § 1, 6/26/80; Bill No. 80-295 § 1, 8/5/80	5.32.110
24-1-126	70-1159, § 4; 70-1287, § 2; Bill No. 72-210 § 2, 7/5/72; Bill No. 85-712 § 1, 4/16/85	5.32.120
24-1-127	Bill No. 78-834 § 1, 3/7/78; Bill No. 80-164 § 1, 4/1/80; Bill No. 80-259 § 2, 6/26/80	5.32.130
24-1-128	70-1159, § 6; 70-1287, § 3; Bill No. 73-590 § 1, 9/18/73; Bill No. 78-834 § 2, 3/7/78; Bill No. 80-259 § 3, 6/28/80; Bill No. 83-1281 § 2, 6/21/83; Bill No. 84-329 § 1, 6/5/84	5.32.140
24-1-129	70-1159, § 7; Bill No. 78-834 § 3, 3/7/78	5.32.150
24-1-130	70-1159, § 9; Bill No. 78-834 § 4, 3/7/78	5.32.160
24-1-131	70-1159, § 10	5.32.170
24-1-132	70-1159, § 8	5.32.180
24-1-133	70-1159, § 11	Repealed by 90-1339
24-1-134	71-1515 § 1; 72-231, § 1	5.16.080
24-1-135	71-1515 § 2; 72-231, § 2; Bill No. 85-958 § 1, 11/5/85	5.16.090
24-1-136	71-1515 § 3; 72-231, § 3	5.16.100
24-1-137	71-1515 § 4; 72-231, § 4	5.16.110
24-1-138	71-1515 § 5	5.16.120
24-2-1	Code 1960, § 21-1	Repealed by 90-1339
24-2-2	Code 1960, § 21-2	Repealed by 90-1339
24-2-3	Code 1960, § 21-3	Repealed by 90-1339
24-2-4	Code 1960, § 21-4	Repealed by 90-1339
24-2-5	Code 1960, § 21-5	Repealed by 90-1339
24-2-6	Code 1960, § 21-6	Repealed by 90-1339
24-2-7	Code 1960, § 21-7	Repealed by 90-1339
24-2-8	Code 1960, § 21-8	Repealed by 90-1339
24-2-9	Code 1960, § 21-9	Repealed by 90-1339
24-2-10	Code 1960, § 21-10	Repealed by 90-1339
24-2-11	Code 1960, § 21-11	Repealed by 90-1339
24-2-12	Code 1960, § 21-12	Repealed by 90-1339
24-2-13	Code 1960, § 21-13	Repealed by 90-1339
24-2-14	Code 1960, § 21-14	Repealed by 90-1339
24-2-15	Code 1960, § 21-15	Repealed by 90-1339
24-2-16	67-130, §§ 1, 2	Repealed by 90-1339
24-2-16.1	67-130, §§ 1, 2	5.36.060
24-2-17	67-130, § 3	Repealed by 90-1339
24-2-18	Code 1960, § 21-118	6.92.010

Prior Code §	Ordinance History	Herein
24-2-19	Code 1960, § 21-119	6.92.030
24-2-20	Code 1960, § 21-120	6.92.040
24-2-21	Code 1960, § 21-121	6.92.050
24-2-22	Code 1960, § 21-122	6.92.060
24-2-23	Code 1960, § 21-123	6.92.020
24-2-24	71-1516, § 1; 72-232, § 1	5.36.010
24-2-25	71-1516, § 2; 72-232, § 2	5.36.030
24-2-26	71-1516, § 3; 72-232, § 3	5.36.040
24-2-27	71-1516, § 4; 72-232, § 4	5.36.020
24-2-28	71-1516, § 5; 72-232, § 5	5.36.050
25-2-1	Code 1960, § 22-1	13.36.010
25-2-2	Code 1960, § 22-2	13.36.020
25-2-3	Code 1960, § 22-3	13.36.100
25-2-4	Code 1960, § 22-4	13.36.130
25-2-5	Code 1960, § 22-5	13.36.110
25-2-6	Code 1960, § 22-6	13.36.120
25-2-7	Code 1960, § 22-7	13.36.030
25-2-8	Code 1960, § 22-8	13.36.040
25-2-9	Code 1960, § 22-9	13.36.050
25-2-10	Code 1960, § 22-11	13.36.060
25-2-11	Code 1960, § 22-12	13.36.080
25-2-12	Code 1960, § 22-13	13.36.070
25-2-13	Code 1960, § 22-14	13.36.090
27-1-1	Bill No. 72-211, 6/20/72; Bill No. 86-1453 §§ 1, 2, 11/18/86	12.04.010—12.04.435
27-1-2	Bill No. 72-211, 6/20/72	12.08.010
27-1-3	Bill No. 72-211, 6/20/72	12.08.040
27-1-4	Bill No. 72-211, 6/20/72	12.08.050
27-1-5	Bill No. 72-211, 6/20/72	12.08.060
27-1-6	Bill No. 72-211, 6/20/72	12.08.130
27-1-7	Bill No. 72-211, 6/20/72	12.08.070
27-1-8	Bill No. 72-211, 6/20/72	12.08.160
27-1-8.1	Bill No. 74-860 § 1, 2/19/74	12.08.120
27-1-9	Bill No. 72-211, 6/20/72	Repealed by 89-796
27-1-10	Bill No. 72-211, 6/20/72	12.08.080
27-1-11	Bill No. 72-211, 6/20/72	12.08.090
27-1-12	Bill No. 72-211, 6/20/72	12.08.140
27-1-13	Bill No. 72-211, 6/20/72	12.08.100
27-1-14	Bill No. 72-211, 6/20/72	12.08.110
27-1-15	Bill No. 72-211, 6/20/72	12.08.150
27-1-16	Bill No. 72-211, 6/20/72	12.08.180
27-1-17	Bill No. 72-211, 6/20/72	12.08.190
27-1-18	Bill No. 72-211, 6/20/72; Bill No. 79-1361 § 1, 6/5/79; Bill No. 86-1323 §§ 1, 2, 7/15/86	12.08.170
27-1-19	Bill No. 72-211, 6/20/72	12.08.020
27-1-20	Bill No. 72-211, 6/20/72	12.08.030
27-1-21—27-1-29		Reserved
27-1-30	Bill No. 72-211, 6/20/72	12.20.010
27-1-31		12.20.020
27-1-32	Bill No. 72-211, 6/20/72	12.20.030
27-1-33	Bill No. 72-211, 6/20/72	12.20.040
27-1-34	Bill No. 72-211, 6/20/72	12.20.060
27-1-35	Bill No. 72-211, 6/20/72	12.20.070
27-1-36	Bill No. 72-211, 6/20/72	12.20.050
27-1-37—27-1-39		Reserved

Prior Code §	Ordinance History	Herein
27-1-40	Bill No. 72-211, 6/20/72; Bill No. 84-231 § 1, 4/3/84	12.76.010
27-1-41	Bill No. 84-231 § 2, 4/3/84	12.76.020
27-1-42—27-1-49		Reserved
27-1-50	Bill No. 72-211, 6/20/72	12.12.010
27-1-51	Bill No. 72-211, 6/20/72	12.12.040
27-1-52	Bill No. 72-211, 6/20/72	12.12.050
27-1-53	Bill No. 72-211, 6/20/72	12.12.060
27-1-54	Bill No. 72-211, 6/20/72	12.12.070
27-1-55	Bill No. 72-211, 6/20/72	12.12.150
27-1-56	Bill No. 72-211, 6/20/72	12.12.160
27-1-57	Bill No. 72-211, 6/20/72	12.12.130
27-1-58	Bill No. 72-211, 6/20/72	12.12.110
27-1-59	Bill No. 72-211, 6/20/72	12.12.080
27-1-60	Bill No. 72-211, 6/20/72; Bill No. 73-837 § 1, 2/19/74	12.12.090
27-1-61	Bill No. 72-211, 6/20/72	12.12.140
27-1-62	Bill No. 72-211, 6/20/72	12.12.100
27-1-63	Bill No. 72-211, 6/20/72	12.12.120
27-1-64	Bill No. 72-211, 6/20/72	12.12.170
27-1-65	Bill No. 72-211, 6/20/72	12.12.180
27-1-66—27-1-69		Reserved
27-1-70	Bill No. 72-211, 6/20/72	12.68.180
27-1-71	Bill No. 72-211, 6/20/72; Bill No. 83-130 § 1, 2/7/84	12.68.170
27-1-72	Bill No. 72-211, 6/20/72	12.68.190
27-1-73	Bill No. 72-211, 6/20/72	12.68.040
27-1-74	Bill No. 72-211, 6/20/72	12.68.050
27-1-75	Bill No. 72-211, 6/20/72	12.68.020
27-1-76	Bill No. 72-211, 6/20/72	12.68.010
27-1-77	Bill No. 72-211, 6/20/72	12.68.030
27-1-78	Bill No. 72-211, 6/20/72	12.68.080
27-1-79	Bill No. 72-211, 6/20/72	12.68.130
27-1-80	Bill No. 72-211, 6/20/72	12.64.010
27-1-81	Bill No. 72-211, 6/20/72	12.64.020
27-1-82	Bill No. 72-211, 6/20/72	12.64.050
27-1-83	Bill No. 72-211, 6/20/72	12.64.060
27-1-84	Bill No. 72-211, 6/20/72	12.64.030
27-1-85	Bill No. 72-211, 6/20/72	12.64.040
27-1-86	Bill No. 72-211, 6/20/72	12.68.100
27-1-87	Bill No. 72-211, 6/20/72	12.68.200
27-1-88	Bill No. 72-211, 6/20/72	12.16.080
27-1-89	Bill No. 72-211, 6/20/72	12.16.090
27-1-90	Bill No. 72-211, 6/20/72	12.68.160
27-1-91	Bill No. 72-211, 6/20/72	12.68.070
27-1-92	Bill No. 72-211, 6/20/72	12.68.140
27-1-93	Bill No. 72-211, 6/20/72	12.16.220
27-1-94	Bill No. 72-211, 6/20/72	12.68.120
27-1-95	Bill No. 72-211, 6/20/72	12.16.010
27-1-96	Bill No. 72-211, 6/20/72	12.68.110
27-1-97	Bill No. 72-211, 6/20/72	12.16.030
27-1-98	Bill No. 72-211, 6/20/72	12.16.020
27-1-99	Bill No. 72-211, 6/20/72	12.16.040
27-1-100	Bill No. 72-211, 6/20/72	12.16.050
27-1-101	Bill No. 72-211, 6/20/72	12.16.060
27-1-102	Bill No. 72-211, 6/20/72	12.16.100
27-1-103	Bill No. 72-211, 6/20/72	12.16.200

Prior Code §	Ordinance History	Herein
27-1-104	Bill No. 72-211, 6/20/72	12.16.070
27-1-105	Bill No. 72-211, 6/20/72	12.16.190
27-1-106	Bill No. 72-211, 6/20/72	12.16.110
27-1-107	Bill No. 72-211, 6/20/72	12.16.120
27-1-108	Bill No. 72-211, 6/20/72	12.16.130
27-1-109	Bill No. 72-211, 6/20/72	12.16.150
27-1-110	Bill No. 72-211, 6/20/72	12.16.160
27-1-111	Bill No. 72-211, 6/20/72; Bill No. 73-837 § 5, 2/19/74	12.16.140
27-1-112	Bill No. 72-211, 6/20/72	12.16.180
27-1-113	Bill No. 72-211, 6/20/72	12.16.230
27-1-114	Bill No. 72-211, 6/20/72	12.12.020
27-1-115	Bill No. 72-211, 6/20/72	12.12.030
27-1-116	Bill No. 72-211, 6/20/72	12.16.170
27-1-117	Bill No. 72-211, 6/20/72	12.68.090
27-1-118	Bill No. 72-211, 6/20/72	12.16.210
27-1-119	Bill No. 72-211, 6/20/72	12.68.150
27-1-119.1	Bill No. 88-294 § 1, 6/7/88	12.68.060
27-1-120	Bill No. 72-211, 6/20/72	12.52.010
27-1-121	Bill No. 72-211, 6/20/72	12.52.020
27-1-122	Bill No. 72-211, 6/20/72	12.52.040
27-1-123	Bill No. 72-211, 6/20/72	12.52.120
27-1-124	Bill No. 72-211, 6/20/72	12.52.030
27-1-125	Bill No. 72-211, 6/20/72	12.52.080
27-1-126	Bill No. 72-211, 6/20/72; Bill No. 72-351 § 1, 10/4/72; Bill No. 80-337 § 1, 10/7/80	12.52.130
27-1-127	Bill No. 72-211, 6/20/72	12.52.110
27-1-128	Bill No. 72-211, 6/20/72	12.52.100
27-1-129	Bill No. 72-211, 6/20/72	12.52.050
27-1-130	Bill No. 72-211, 6/20/72	12.52.090
27-1-131	Bill No. 72-211, 6/20/72	12.52.070
27-1-131.1	Bill No. 73-769 §§ 1, 2, 12/18/73	12.52.060
27-1-132	Bill No. 72-211, 6/20/72	12.52.140
27-1-133—27-1-139		Reserved
27-1-140	Bill No. 72-211, 6/20/72; Bill No. 73-837 § 6, 2/19/74	12.40.200
27-1-141	Bill No. 72-211, 6/20/72	12.40.170
27-1-142	Bill No. 72-211, 6/20/72	12.40.140
27-1-143	Bill No. 72-211, 6/20/72; Bill No. 81-670 § 1, 12/8/81	12.40.210
27-1-144	Bill No. 72-211, 6/20/72	12.40.030
27-1-145	Bill No. 72-211, 6/20/72; Bill No. 86-1453 § 3, 11/18/86; Bill No. 88-228 § 1, 5/17/88	12.40.040
27-1-146	Bill No. 72-211, 6/20/72	12.40.080
27-1-147	Bill No. 72-211, 6/20/72	12.40.060
27-1-148	Bill No. 72-211, 6/20/72	12.40.150
27-1-149	Bill No. 72-211, 6/20/72	Repealed by 98-1191
27-1-150	Bill No. 72-211, 6/20/72	12.40.110
27-1-151	Bill No. 72-211, 6/20/72	12.40.120
27-1-152	Bill No. 72-211, 6/20/72	12.40.130
27-1-153	Bill No. 72-211, 6/20/72	12.40.180
27-1-154	Bill No. 72-211, 6/20/72; Bill No. 86-1260 § 1, 6/17/86	12.40.190
27-1-155	Bill No. 72-211, 6/20/72	12.40.100
27-1-156	Bill No. 72-211, 6/20/72	12.40.070
27-1-157	Bill No. 72-211, 6/20/72	12.40.050
27-1-157.5	Bill No. 82-991 §§ 1—3, 10/5/82; Bill No. 82-1116 §§ 1—3, 2/1/83	12.40.090
27-1-158	Bill No. 72-211, 6/20/72	12.40.010

Prior Code §	Ordinance History	Herein
27-1-159	Bill No. 72-211, 6/20/72	12.40.230
27-1-160	Bill No. 72-211, 6/20/72	12.40.020
27-1-161	Bill No. 72-211, 6/20/72	12.40.220
27-1-162	Bill No. 72-211, 6/20/72; Bill No. 73-837 § 7, 2/19/74	12.48.010
27-1-163	Bill No. 72-211, 6/20/72	12.48.030
27-1-164	Bill No. 72-211, 6/20/72	12.48.040
27-1-165	Bill No. 72-211, 6/20/72	12.48.050
27-1-166	Bill No. 72-211, 6/20/72	12.48.020
27-1-167	Bill No. 72-211, 6/20/72	Repealed by 90-1339
27-1-168	Bill No. 72-211, 6/20/72	Repealed by 90-1339
27-1-169	Bill No. 72-211, 6/20/72	12.48.070
27-1-170	Bill No. 72-211, 6/20/72	12.48.080
27-1-171	Bill No. 72-211, 6/20/72	12.48.060
27-1-171.1	Bill No. 75-1298 §§ 1—4, 8/5/75	12.48.090
27-1-172	Bill No. 72-211, 6/20/72	12.44.010
27-1-173	Bill No. 72-211, 6/20/72	12.44.020
27-1-174	Bill No. 72-211, 6/20/72	12.44.030
27-1-175	Bill No. 72-211, 6/20/72	12.44.040
27-1-176	Bill No. 72-211, 6/20/72	12.44.050
27-1-177	Bill No. 72-211, 6/20/72	12.44.060
27-1-178—27-1-179		Reserved
27-1-180	Bill No. 72-211, 6/20/72; Bill No. 73-837 § 2, 2/19/74	12.24.010
27-1-181	Bill No. 72-211, 6/20/72	12.24.020
27-1-182	Bill No. 72-211, 6/20/72; Bill No. 73-837 § 3, 2/19/74	12.24.030
27-1-183	Bill No. 72-211, 6/20/72	12.24.040
27-1-184	Bill No. 72-211, 6/20/72	12.24.050
27-1-185	Bill No. 72-211, 6/20/72	12.24.060
27-1-186	Bill No. 72-211, 6/20/72	12.76.090
27-1-187	Bill No. 72-211, 6/20/72	12.76.100
27-1-188	Bill No. 72-211, 6/20/72	12.76.110
27-1-189		Reserved
27-1-190	Bill No. 72-211, 6/20/72	13.12.010
27-1-191	Bill No. 72-211, 6/20/72	13.12.040
27-1-192	Bill No. 72-211, 6/20/72	13.12.030
27-1-193	Bill No. 72-211, 6/20/72	13.12.080
27-1-194	Bill No. 72-211, 6/20/72	13.12.050
27-1-195	Bill No. 72-211, 6/20/72	13.12.060
27-1-196	Bill No. 72-211, 6/20/72	13.12.070
27-1-197	Bill No. 72-211, 6/20/72	13.12.090
27-1-198	Bill No. 72-211, 6/20/72	13.12.110
27-1-199	Bill No. 72-211, 6/20/72	13.12.120
27-1-200	Bill No. 72-211, 6/20/72	13.12.100
27-1-201	Bill No. 72-211, 6/20/72	13.12.130
27-1-202	Bill No. 72-211, 6/20/72	13.12.140
27-1-203	Bill No. 72-211, 6/20/72	13.12.150
27-1-204	Bill No. 72-211, 6/20/72	13.12.020
27-1-205	Bill No. 72-211, 6/20/72	13.12.160
27-1-206	Bill No. 72-211, 6/20/72	13.12.170
27-1-207	Bill No. 72-211, 6/20/72	13.12.180
27-1-208	Bill No. 72-211, 6/20/72	13.12.190
27-1-209		Reserved
27-1-210	Bill No. 72-211, 6/20/72	Repealed by 90-1339
27-1-211	Bill No. 72-211, 6/20/72	Repealed by 90-1339
27-1-212	Bill No. 72-211, 6/20/72	Repealed by 90-1339

Prior Code §	Ordinance History	Herein
27-1-213	Bill No. 72-211, 6/20/72	Repealed by 90-1339
27-1-214	Bill No. 72-211, 6/20/72	Repealed by 90-1339
27-1-215	Bill No. 72-211, 6/20/72	Repealed by 90-1339
27-1-216	Bill No. 72-211, 6/20/72	Repealed by 90-1339
27-1-217	Bill No. 72-211, 6/20/72	Repealed by 90-1339
27-1-218	Bill No. 72-211, 6/20/72	Repealed by 90-1339
27-1-219	Bill No. 72-211, 6/20/72	Repealed by 90-1339
27-1-220	Bill No. 72-211, 6/20/72	12.72.010
27-1-221	Bill No. 72-211, 6/20/72	12.72.020
27-1-222	Bill No. 72-211, 6/20/72	12.72.030
27-1-223	Bill No. 72-211, 6/20/72	12.72.050
27-1-224	Bill No. 72-211, 6/20/72	12.72.060
27-1-225	Bill No. 72-211, 6/20/72	12.72.070
27-1-226	Bill No. 72-211, 6/20/72; Bill No. 73-723 § 1, 2/19/74	12.72.040
27-1-227	Bill No. 74-847 § 1, 2/5/74	12.72.080
27-1-228—27-1-229		Reserved
27-1-230	Bill No. 72-211, 6/20/72	12.28.010
27-1-231	Bill No. 72-211, 6/20/72	12.28.020
27-1-232	Bill No. 72-211, 6/20/72	12.28.030
27-1-233—27-1-239		Reserved
27-1-240	Bill No. 72-211, 6/20/72	12.60.010
27-1-241	Bill No. 72-211, 6/20/72	12.60.170
27-1-242	Bill No. 72-211, 6/20/72	12.60.020
27-1-243	Bill No. 72-211, 6/20/72	12.60.030
27-1-244	Bill No. 72-211, 6/20/72	12.60.040
27-1-245	Bill No. 72-211, 6/20/72	12.60.050
27-1-246	Bill No. 72-211, 6/20/72	12.60.080
27-1-247	Bill No. 72-211, 6/20/72; Bill No. 86-1453 § 5, 11/18/86	12.60.060
27-1-248	Bill No. 72-211, 6/20/72; Bill No. 86-1453 § 6, 11/18/86	12.60.070
27-1-249	Bill No. 72-211, 6/20/72	Repealed by 99-1815
27-1-250	Bill No. 72-211, 6/20/72	12.60.110
27-1-251	Bill No. 72-211, 6/20/72; Bill No. 86-1453 § 4, 11/18/86	12.60.160
27-1-252	Bill No. 72-211, 6/20/72	12.60.130
27-1-253	Bill No. 72-211, 6/20/72	Repealed by 99-1815
27-1-254	Bill No. 72-211, 6/20/72	12.60.150
27-1-255	Bill No. 72-211, 6/20/72	12.60.100
27-1-256	Bill No. 72-211, 6/20/72; Bill No. 86-1453 § 7, 11/18/86	12.60.120
27-1-257—27-1-259		Reserved
27-1-260	Bill No. 72-211, 6/20/72	12.36.010
27-1-261	Bill No. 72-211, 6/20/72	12.36.020
27-1-262	Bill No. 72-211, 6/20/72	12.36.030
27-1-263	Bill No. 72-211, 6/20/72	12.36.040
27-1-264	Bill No. 72-211, 6/20/72	12.36.050
27-1-265	Bill No. 72-211, 6/20/72	12.36.060
27-1-266	Bill No. 72-211, 6/20/72	12.36.070
27-1-267	Bill No. 72-211, 6/20/72	12.36.090
27-1-268	Bill No. 72-211, 6/20/72	12.36.120
27-1-269	Bill No. 72-211, 6/20/72	12.36.080
27-1-270	Bill No. 72-211, 6/20/72; Bill No. 73-837 § 4, 2/19/74	12.36.110
27-1-271	Bill No. 72-211, 6/20/72	12.36.100
27-1-272—27-1-279		Reserved
27-1-280	Bill No. 72-211, 6/20/72	12.32.010
27-1-281	Bill No. 72-211, 6/20/72	12.32.050
27-1-282	Bill No. 72-211, 6/20/72	12.32.030

Prior Code §	Ordinance History	Herein
27-1-283	Bill No. 72-211, 6/20/72	12.32.070
27-1-284	Bill No. 72-211, 6/20/72	12.32.080
27-1-285	Bill No. 72-211, 6/20/72	12.32.040
27-1-286	Bill No. 72-211, 6/20/72	12.32.020
27-1-287	Bill No. 72-211, 6/20/72	12.32.060
27-1-288	Bill No. 83-1129 §§ 1, 2, 5/17/83	12.32.090
27-1-289		Reserved
28-2-1	Code 1960, § 25-1	10.76.010
28-2-2	Code 1960, § 25-2	10.76.020
28-2-3	Code 1960, § 25-3	10.76.030
28-2-4	Code 1960, § 25-4	10.76.190
28-2-5	Code 1960, § 25-6	10.76.040
28-2-6	Code 1960, § 25-5	10.76.170
28-2-7	Code 1960, § 25-7	10.76.050
28-2-8	Code 1960, § 25-8	10.76.140
28-2-9	Code 1960, § 25-9	10.76.200
28-2-10	Code 1960, § 25-10	10.76.160
28-2-11	Code 1960, § 25-11	10.76.150
28-2-12	Code 1960, § 25-12	10.76.090
28-2-13	Code 1960, § 25-13	10.76.080
28-2-14	Code 1960, § 25-14	10.76.070
28-2-15	Code 1960, § 25-15	10.76.060
28-2-16	Code 1960, § 25-16	10.76.110
28-2-17	Code 1960, § 25-17	10.76.100
28-2-18	Code 1960, § 25-18	10.76.120
28-2-19	Code 1960, § 25-19	10.76.130
28-2-20	Code 1960, § 25-20	10.76.180
29-1-1	66-928, § 73	11.04.070
29-1-2		11.08.010
29-1-3	66-928, § 16	11.12.020
29-1-4		Repealed by 76-81
29-1-4.1		Repealed by 90-1339
29-1-5	66-928, § 13	11.24.040
29-1-6—29-1-10		Reserved
29-1-11	65-651, § 1; 72-184, §§ 1, 2	Repealed by 95-150
29-1-12	65-651, § 2	Repealed by 95-150
29-1-13	65-651, § 4	Repealed by 95-150
29-1-14	66-928, § 24	11.16.070
29-1-15	66-928, § 14; 70-1275, § 2; Bill No. 78-1165 § 1, 1/16/79	11.12.010
29-1-16		11.12.060
29-1-16.1	Bill No. 85-652 §§ 1, 2, 2/5/85	1.24.050
29-1-17		Repealed by 76-81
29-1-18	66-298, § 20; Bill No. 74-988 § 1, 7/16/74	11.16.050
29-1-19—29-1-21		Repealed by 76-81
29-1-21.1	71-39 § 1; Bill No. 88-233 § 1, 5/17/88	11.04.080
29-1-22	66-928, § 84	11.12.030
29-1-22.1	66-59 §§ 1—4	11.28.050
29-1-23		11.04.100
29-1-24		Repealed by 76-81
29-1-25	66-928, § 38	6.28.010
29-1-26	66-928, § 55	6.28.020
29-1-27—29-1-28		Repealed by 76-81
29-1-29	66-928, § 41	11.28.070
29-1-30		Repealed by 76-81

Prior Code §	Ordinance History	Herein
29-1-31	66-928, § 42	11.04.060
29-1-32	66-928, § 54	Repealed by 90-1339
29-1-32.1	Bill No. 76-285 §§ 1, 2, 10/5/76	Repealed by 90-1339
29-1-33	66-928, §57	11.16.020
29-1-34	Bill No. 78-859 §§ 1—4, 4/4/78; Bill No. 78-958 §§ 1, 2, 7/18/78; Bill No. 79-1213 § 1, 3/20/79	11.16.040
29-1-35	66-928, § 8	11.24.020
29-1-36—29-1-37		Reserved
29-1-38	66-928, § 49	11.12.040
29-1-39	66-928, § 83	11.28.030
29-1-39.1	Bill No. 77-455 § 1, 4/19/77	11.28.040
29-1-40	66-928, § 86; Bill No. 79-12 § 1, 10/16/79	11.28.020
29-1-41	66-928, § 61; Bill No. 77-754 § 2, 1/17/78; Bill No. 78-835 §§ 1, 2, 4/4/78	Repealed by BL2004-350
29-1-41.1	72-111, §§ 1—4	11.28.130
29-1-41.2	72-185, § 2	11.28.080
29-1-41.3	Bill No. 75-12-69, §§ 1—3, 6/17/75	11.28.120
29-1-41.4	Bill No. 76-151 § 1, 6/15/76	11.28.010
29-1-41.5	Bill No. 76-266, §§ 1, 2, 10-5-76	11.28.140
29-1-42	66-928, § 50	6.44.010
29-1-42.1(a)	Bill No. 76-195 §6, 6/15/76; Bill No. 86-1175 § 1, 4/1/86	Repealed by 97-758
29-1-42.1(b)	Bill No. 76-195 §6, 6/15/76; Bill No. 86-1175 § 1, 4/1/86	Repealed by 97-758
29-1-42.1(c)	Bill No. 76-195 §6, 6/15/76; Bill No. 86-1175 § 1, 4/1/86	Repealed by 97-758
29-1-42.1(d)	Bill No. 76-195 §6, 6/15/76; Bill No. 86-1175 § 1, 4/1/86	Repealed by 97-758
29-1-42.1(e)	Bill No. 76-195 §6, 6/15/76; Bill No. 86-1175 § 1, 4/1/86	Repealed by 97-758
29-1-42.1(f)	Bill No. 76-195 §6, 6/15/76; Bill No. 86-1175 § 1, 4/1/86	Repealed by 97-758
29-1-42.1(g)	Bill No. 76-195 §6, 6/15/76; Bill No. 86-1175 § 1, 4/1/86	Repealed by 97-758
29-1-43	66-928, § 58	Repealed by 90-1339
29-1-44	66-928, § 57	Repealed by 90-1339
29-1-45	66-928, § 59	Repealed by 90-1339
29-1-45.1	68-625, § 1	Repealed by 90-1339
29-1-45.2	68-625, § 1	Repealed by 90-1339
29-1-45.3	68-625, § 1	Repealed by 90-1339
29-1-45.4	68-625, § 1	Repealed by 90-1339
29-1-45.5	Bill No. 74-1133 § 1, 12/17/74	Repealed by 90-1339
29-1-46	66-928, § 60	13.24.470
29-1-47	66-928, § 81	11.16.010
29-1-48	66-928, § 62	6.56.010
29-1-49	66-928, § 52	Repealed by 90-1230
29-1-50	66-928, § 50	Repealed by 90-1230
29-1-51	65-606, §§ 1—3	11.24.030
29-1-52	66-928, § 63	11.24.080
29-1-53	66-928, § 64	11.24.070
29-1-54	66-928, § 65; 70-1153, § 1	11.12.070
29-1-55		Repealed by 76-81
29-1-56	66-928, § 47	11.12.050
29-1-57	66-928, § 68	11.16.080
29-1-58		11.24.010
29-1-59	66-928, § 69	11.24.100
29-1-60		Repealed by 76-81
29-1-61	66-928, § 74	11.24.090
29-1-62		Repealed by 72-372
29-1-63	66-928, § 75	11.24.050
29-1-64	66-928, § 76	11.24.060

Prior Code §	Ordinance History	Herein
29-1-65		Repealed by 76-81
29-1-66	66-928, § 80	11.32.020
29-1-67	Bill No. 73-691 § 1, 12/11/73	Repealed by 90-1339
29-1-68		11.32.010
29-2-1		Repealed by 76-81
30-2-1	Code 1960, § 27-1	13.40.010
30-2-2	Code 1960, § 27-2	13.40.030
30-2-3	Code 1960, § 27-3	13.40.040
30-2-4	Code 1960, § 27-4	13.40.050
30-2-5	Code 1960, § 27-5	13.40.060
30-2-6	Code 1960, § 27-6	13.40.020
30A-1-1	69-84, § 1; Bill No. 84-436 § 1, 9/18/84	13.24.010
30A-1-2(a)	69-842, § 1	13.24.030
30A-1-2(b)	69-842, § 1	13.24.020
30A-1-2.1(a)	Bill No. 76-216 §§ 1—3, 8/3/76	Repealed by BL2003-96
30A-1-2.1(b), (c)	Bill No. 76-216 §§ 1—3, 8/3/76	13.24.060
30A-1-2.2	Bill No. 88-214 §§ 1, 2, 4/5/88	13.24.040
30A-1-3	69-842, § 1	13.24.490
30A-1-4	69-842, § 1	13.24.480
30A-1-5	69-842, § 1	13.24.460
30A-1-6	69-842, § 1; Bill No. 78-929 § 1, 6/20/78	13.24.390
30A-1-7	69-842, § 1	13.24.430
30A-1-8	69-842, § 1	13.24.450
30A-1-9	69-842, § 1	13.24.440
30A-1-10	69-842, § 1	13.24.400
30A-1-11	69-842, § 1	13.24.410
30A-1-12	69-842, § 1	13.24.420
30A-1-13	69-842, § 1	13.24.070
30A-1-14	69-842, § 1	13.24.150
30A-1-15	69-842, § 1	13.24.200
30A-1-16	69-842, § 1	13.24.220
30A-1-17	69-842, § 1	13.24.210
30A-1-18	69-842, § 1	13.24.120
30A-1-19	69-842, § 1	13.24.160
30A-1-20	69-842, § 1	13.24.110
30A-1-21	69-842, § 1	13.24.170
30A-1-22	69-842, § 1	13.24.100
30A-1-23	69-842, § 1	13.24.230
30A-1-24	69-842, § 1	13.24.240
30A-1-25	69-842, § 1	13.24.180
30A-1-26	69-842, § 1	13.24.130
30A-1-27	69-842, § 1	13.24.190
30A-1-28	69-842, § 1	13.24.080
30A-1-29	69-842, § 1; Bill No. 76-398 § 1, 2/1/77	13.24.090
30A-1-30	69-842, § 1	13.24.140
30A-1-31	69-842, § 1	13.24.250
30A-1-32	69-842, § 1	13.24.280
30A-1-33	69-842, § 1	13.24.290
30A-1-34	69-842, § 1	13.24.360
30A-1-35	69-842, § 1	13.24.350
30A-1-36	69-842, § 1	13.24.270
30A-1-37	69-842, § 1	13.24.300
30A-1-38	69-842, § 1	13.24.340

Prior Code §	Ordinance History	Herein
30A-1-39	69-842, § 1	13.24.330
30A-1-40	69-842, § 1	13.24.310
30A-1-41	69-842, § 1	13.24.370
30A-1-42	69-842, § 1	13.24.320
30A-1-43	69-842, § 1	13.24.380
30A-1-44	69-842, § 1	13.24.260
31-1-1(a)	Bill No. 080-134 § 1, 4/1/80	6.48.010
31-1-1(b)	Bill No. 080-134 § 1, 4/1/80	6.48.020
31-1-1(c)	Bill No. 080-134 § 1, 4/1/80	6.48.030
31-2-1	Code 1960, § 28-1	6.100.070
31-2-2	Code 1960, § 28-2	6.100.090
31-2-3	Code 1960, § 28-3	6.100.100
31-2-4	Code 1960, § 28-8	6.100.110
31-2-5	Code 1960, § 28-4	6.100.080
31-2-6	Code 1960, § 28-6	6.100.050
31-2-7	Code 1960, § 28-7	6.100.060
31-2-8	Code 1960, § 28-5	6.100.010
31-2-9	Code 1960, § 28-9	6.100.020
31-2-10	Code 1960, § 28-10	6.100.030
31-2-11	Code 1960, § 28-12	6.100.040
32-1-1	64-320, §§ 1.01—1.38; 71-1407, §§ 1—6; Bill No. 73-624 § 1, 8/7/73; Bill No. 74-854 §§ 1, 2, 2/19/74; Bill No. 84-599 § 1, 6/11/85; Bill No. 87-14 §§ 1, 2, 6/28/88; Bill No. 88-310 § 1, 8/16/88; Bill No. 88-311 § 1, 8/16/88; Bill No. 88-587 § 1, 12/20/88	3.08.010
32-1-2	64-320, § 2.01	3.08.020
32-1-3	64-320, § 2.04	3.08.030
32-1-4	64-320, § 2.02; 71-1407, § 7	3.08.040
32-1-4.1	Bill No. 72-418 § 1, 2/6/73	3.08.050
32-1-4.2	Bill No. 73-498 §§ 1, 2, 5/15/73; Bill No. 73-552, §§ 1, 2, 6/5/73	Repealed by 92-159
32-1-4.3	Bill No. 86-1567 §§ 1—5, 1/6/87	Repealed by 94-1056
32-1-5	64-320, § 2.03; 71-58, § 1; Bill No. 73-624 § 1, 8/7/73; Bill No. 77-421 § 1, 4/5/77; Bill No. 88-589 § 6, 12/20/88	3.08.110
32-1-6	64-320, § 2.05; Bill No. 73-624 § 1, 8/7/73; Bill No. 78-953 § 1, 7/18/78	3.08.130
32-1-7	64-320, § 2.05; Bill No. 73-624 § 1, 8/7/73	3.08.120
32-1-8	64-320, § 2.06; 71-1407, § 8; Bill No. 73-624 § 1, 8/7/73; Bill No. 79-1445 § 1, 7/5/79	3.08.140
32-1-9	64-320, § 2.07	3.08.060
32-1-10	64-320, § 2.08; 71-1407, § 9	3.08.150
32-1-11	64-320, § 2.09; 71-1407, § 10	3.08.080
32-1-12	64-320, § 2.10	3.08.160
32-1-13	64-320, § 2.11	3.08.190
32-1-14	64-320, § 2.12	3.08.230
32-1-15	64-320, § 2.13	3.08.180
32-1-16	64-320, § 2.14	3.08.240
32-1-17	64-320, § 2.17	3.08.100
32-1-18	64-320, § 2.18	3.08.200
32-1-19	64-320, § 2.19; Bill No. 73-624 § 1, 8/7/73	3.08.220
32-1-20	64-320, § 2.20; Bill No. 73-624 § 1, 8/7/73	3.08.210
32-1-20.1	Bill No. 74-1173 § 7, 1/21/75; Bill No. 85-658 § 2, 3/19/85	3.08.170
32-1-21	64-320, § 3.01	3.12.010
32-1-22	64-320, § 3.02; Bill No. 74-854 § 3, 2/19/74; Bill No. 77-534 § 1, 6/21/77	3.12.020
32-1-23	64-320, § 3.03; 71-1407, § 11	3.12.030
32-1-24	64-320, § 3.04; Bill No. 74-854 § 4, 2/19/74	3.12.040

Prior Code §	Ordinance History	Herein
32-1-25	64-320, § 3.05; Bill No. 73-624 § 1, 8/7/73; Bill No. 74-854 § 5, 2/19/74; Bill No. 80-303 § 1, 9/16/80	3 12.050
32-1-26	64-320, § 3.06; Bill No. 73-624 § 1, 8/7/73; Bill No. 74-854 § 6, 2/19/74	3.12.060
32-1-27	64-320, § 4.01; Bill No. 73-624 § 1, 8/7/73; Bill No. 79-1445 § 2, 7/5/79; Bill No. 80-411 § 1, 12/16/80	3.16.010
32-1-28	64-320, § 4.02; 66-772, § 1; Bill No. 73-624 § 1, 8/7/73; Bill No. 78-995 § 1, 6/27/78; Bill No. 79-1445 § 3, 7/5/79; Bill No. 80-303 § 2, 9/16/80; Bill No. 80-411 § 2, 12/16/80; Bill No. 83-74 § 1, 5/21/85; Bill No. 86-1121 § 1, 2/14/86	3.16.020
32-1-29	64-320, § 4.03; 71-1407, § 12; Bill No. 73-624 § 1, 8/7/73; Bill No. 73-719 § 1, 11/20/73; Bill No. 74-854 § 7, 2/19/74; Bill No. 86-1524 § 1, 12/9/86	3.16.030
32-1-30	64-320, § 4.04; 66-772, § 2; Bill No. 73-624 § 1, 8/7/73; Bill No. 83-74 § 2, 5/21/85; Bill No. 86-1121 § 2, 2/14/86	3.16.040
32-1-31	64-320, § 4.05; 71-1407, § 13; Bill No. 73-624 § 1, 8/7/73; Bill No. 74-854 § 8, 2/19/74; Bill No. 74-1143 § 9, 1/21/75; Bill No. 80-339 § 1, 10/7/80	3.16.050
32-1-32	64-320, § 5.01; Bill No. 74-854 § 9, 2/19/74; Bill No. 79-1445 § 4, 7/5/79	3.20.010
32-1-33	64-320, § 5.02	3.20.020
32-1-34	64-320, § 5.03; Bill No. 81-814 § 1, 2/2/82	3.20.030
32-1-35	64-320, § 6.01; Bill No. 73-624 § 1, 8/7/73; Bill No. 74-854 § 10, 2/19/74; Bill No. 82-1117 § 1, 2/1/83; Bill No. 84-557 § 1, 12/4/84	3.24.010
32-1-36	64-320, § 6.02; Bill No. 73-624 § 1, 8/7/73; Bill No. 77-422 § 1, 3/15/77; Bill No. 88-589 § 5, 12/20/88	3.24.020
32-1-37—32-1-40		Reserved
32-1-41	64-320, § 7.05	3.28.010
32-1-42	64-320, § 7.01	3.28.020
32-1-43	64-320, § 7.02; 71-1407, § 14	3.28.030
32-1-44	64-320, § 7.03	3.28.040
32-1-45	64-320, § 7.04; 71-1407, § 15; Bill No. 73-624 § 1, 8/7/73; Bill No. 79-1405 § 1, 6/28/79	3.28.050
32-1-45.1		Repealed by 79-1243
32-1-46	64-320, § 7.06; Bill No. 84-471 § 1, 12/4/84	3.28.060
32-1-47	Bill No. 64-320 § 7.07; Bill No. 73-624 § 1, 8/7/73; Bill No. 74-1173 § 9, 1/21/75	3.28.070
32-1-48	64-320, § 7.08	3.28.080
32-1-48.1	71-1407, § 16	3.28.090
32-1-48.2	Bill No. 79-918 § 1, 7/18/78; Bill No. 79-1267 § 1, 4/17/79	3.28.100
32-1-49	64-320, § 8.01	3.32.010
32-1-50	64-320, § 8.02; 71-1407, § 17; Bill No. 72-200 § 1, 11/21/72; Bill No. 88-311 § 2, 8/16/88	3.32.020
32-1-51	64-320, § 8.03; Bill No. 74-1173 § 2, 1/21/75	3.32.030
32-1-52	64-320, § 8.04; Bill No. 73-624, 8/7/73; Bill No. 74-1173 § 3, 1/21/75	3.32.040
32-1-53	64-320, § 9.01	3.36.010
32-1-54	64-320, § 9.02; 71-1407, § 18	3.36.020
32-1-55	64-320, § 9.03; Bill No. 74-1173 § 4, 1/21/75	3.36.030
32-1-56	64-320, § 9.04; Bill No. 73-624 § 1, 8/7/73; Bill No. 74-1173 § 5, 1/21/75	3.36.040
32-1-57	64-320, § 10.01; 71-1407, § 19; Bill No. 73-588 § 1, 8/7/73; Bill No. 73-624 § 1, 8/7/73; Bill No. 74-854 § 12, 2/19/74; Bill No. 74-1183 § 1, 1/21/75; Bill No. 80-338 § 1, 10/7/80	3.40.010
32-1-58	64-320, § 10.02	3.40.020
32-1-59	64-320, § 10.03; Bill No. 73-624 § 1, 8/7/73	3.40.030

Prior Code §	Ordinance History	Herein
32-1-60	Bill No. 64-320, § 10.04; Bill No. 74-1173 § 6, 1/21/75	3.40.040
32-1-60.1	Bill No. 71-1407, § 20	Repealed by 85-658
32-1-61	64-320	3.44.010
32-1-62	64-320	3.44.020
32-1-63	64-320	3.44.030
32-1-64	64-320; 66-772, § 3	3.44.040
32-1-65	64-320	3.44.050
32-1-66	64-320	3.44.060
32-1-66.1	Bill No. 79-1358 §§ 1—8, 6/5/79	3.44.070
32-1-67	63-22, § 1	3.48.010
32-1-68	63-22, § 2	3.48.020
32-1-69	63-22, § 3	3.48.040
32-1-70	63-22, § 4	3.48.050
32-1-71	63-22, § 6	3.48.060
32-1-72	63-22, § 7	3.48.070
32-1-73	63-22, §§ 8, 9; 65-543, § 1; Bill No. 87-1770 §1, 6/15/87	3.48.080
32-1-74	67-331, § 1	3.48.030
32-1-75	71-1357, §§ 1—3; Bill No. 78-954 § 1, 6/20/78	3.52.010
32-1-76	71-1358	3.56.010
32-1-77	71-1358	3.56.020
32-1-78	71-1358	3.56.030
32-1-79	71-1358	3.56.040
32-1-80	71-1358	3.56.050
32-1-81	71-1358	3.56.060
32-1-82	71-1358	3.56.070
32-1-83	71-1358	3.56.080
32-1-84	71-1358	3.56.090
32-1-85	Bill No. 82-846 § 2, 3/16/82	2.40.120
32-1-86	Bill No. 82-846 § 2, 3/16/82	2.40.130
32-1-87	Bill No. 82-846 § 2, 3/16/82	2.40.140
33-1-1	65-654	16.12.010
33-1-2	65-654; 68-579, Art. 2; Bill No. 87-1674 § 1, 4/7/87	16.12.020
33-1-3	65-654	16.12.030
33-1-4	65-654; 68-579, Art. 2; Bill No. 83-67 § I, 12/20/83; Bill No. 85-734 § 1, 5/21/85	Repealed by 89-1028
33-1-5	65-654	16.12.040
33-1-6	65-654	16.12.070
33-1-7	65-654; 68-579, Art. 2	16.12.080
33-1-8		Repealed by 68-579
33-1-9	65-654	16.12.090
33-1-10	65-654	16.12.110
33-1-11	65-654; 68-579, Art. 2	16.12.100
33-1-12	65-654	16.12.050
33-1-13		Repealed by 76-292
33-1-14	65-654, Art. 3	16.12.060
33-1-15	65-654	2.92.010
33-1-16	65-654	2.92.020
33-1-17	65-654	2.92.030
33-1-18	65-654	2.92.040
33-1-19	65-654	2.92.050
33-1-20	65-654	2.92.070
33-1-21	65-654; 68-579, Art. 2	2.92.090
33-1-22	65-654	2.92.060
33-1-23	65-654; 68-579, Art. 2; Bill No. 72-292 Art. I, 8-15-72	2.92.080

Prior Code §	Ordinance History	Herein
33-1-24	65-654	2.92.100
33-1-25	65-654	2.92.110
33-1-26	65-654	2.92.120
33-1-27	65-654	2.92.130
33-1-28(a)	65-654, Art. 1; Bill No. 72-292 Art. III, 8/15/72; Bill No. 72-330 § 1, 103-72; Bill No. 74-1119, Art. I, 10/15/74; Bill No. 75-7 Arts. I, II, 11/18/75; Bill No. 79-1352 § 1, 6/5/79; Bill No. 82-817 § 1, 2/16/82; Bill No. 83-67 § II, 12/20/83; Bill No. 85-734 § 2, 5/21/85; Bill No. 85-865 § 1, 8/20/85; Bill No. 85-950 §§ 1, 2, 10/1/85; Bill No. 86-1335 § 3, 10/21/86; Bill No. 87-1674 § 2, 4/7/87	16.12.120, 16.12.130
33-1-28(b)	65-654, Art. 1; Bill No. 72-292 Art. III, 8/15/72; Bill No. 72-330 § 1, 103-72; Bill No. 74-1119, Art. I, 10/15/74; Bill No. 75-7 Arts. I, II, 11/18/75; Bill No. 79-1352 § 1, 6/5/79; Bill No. 82-817 § 1, 2/16/82; Bill No. 83-67 § II, 12/20/83; Bill No. 85-734 § 2, 5/21/85; Bill No. 85-865 § 1, 8/20/85; Bill No. 85-950 §§ 1, 2, 10/1/85; Bill No. 86-1335 § 3, 10/21/86; Bill No. 87-1674 § 2, 4/7/87	Repealed by 92-118
33-1-29	65-654; 68-579, Art. 2; 71-20, Art. 1	16.12.150
33-1-30	Bill No. 83-67 § III, 12/20/83; Bill No. 84-350 § 1, 7/17/84	16.12.170
33-1-31		Repealed by 68-579
33-1-32	65-654	16.12.160
33-1-33	65-654	16.12.180
33-1-34	65-654	16.12.190
33-1-35	65-654	16.12.200
33-1-36	65-654	16.12.210
33-1-37	65-654; Bill No. 79-1352 § 2, 6/5/79; Bill No. 83-67 § IV, 12/20/83; Bill No. 87-1674 § 3, 4/7/87	16.12.220
33-1-38	65-654	16.12.230
33-1-39	68-579; Bill No. 79-1352 § 4, 6/5/79	16.12.240
33-1-40	65-654	16.12.250
33-1-41	65-654	16.12.260
33-1-42	65-654; Bill No. 83-67 § V, 12/20/83	16.12.270
33-1-43	65-654	16.12.290
33-1-43.1	68-579	Repealed by 98-1445
33-1-44	65-654	16.12.300
33-1-45	65-654	16.12.320
33-1-46	65-654	16.12.310
33-1-47	65-654; Bill No. 83-67 § VI, 12/20/83	16.12.420
33-1-48	65-654	16.12.330
33-1-49	65-654	16.12.340
33-1-50	65-654	16.12.350
33-1-51	65-654	16.12.360
33-1-52	65-654	16.12.370
33-1-53	65-654	16.12.400
33-1-54	65-654	16.12.390
33-1-55	65-654	16.12.450
33-1-56	65-654	16.12.380
33-1-57	65-654	16.12.430
33-1-58	65-654	16.12.410
33-1-59	65-654	16.12.440
33-1-60	65-654; 68-579, Art. 2; Bill No. 87-1674 § 4, 4/7/87	Repealed by 2004-178
33-1-61	65-654	6.52.020
33-1-62	65-654; 68-579, Art. 2	Repealed by 2004-178
33-1-63	65-654; 68-579, Art. 2; 71-20, Art. 2; Bill No. 86-1335 § 4, 10/21/86	6.52.040

Prior Code §	Ordinance History	Herein
33-1-64	65-654; 68-579, Art. 2	6.52.050
33-1-65	65-654; 68-579, Art. 2; Bill No. 77-531 § 1, 6/7/77	6.52.060
33-1-66	65-654	6.52.070
33-1-67	65-654; 68-579, Art. 2; Bill No. 72-292 Art. II, 8/15/72	6.52.080
33-1-68	65-654; 68-579, Art. 2	6.52.090
33-1-69	65-654; 68-579, Art. 2; Bill No. 79-1352 § 3, 6/5/79	6.52.100
33-1-70	65-654; Bill No. 80-372 § 1, 11/18/80	6.52.110
33-1-71	65-654; 68-579, Art. 2; Bill No. 75-7 Art. III, 11/18/75	6.52.120
33-1-72	65-654	6.52.130
33-1-73	65-654; 68-579, Art. 2	6.52.140
33-1-74	65-654	6.52.150
33-1-75	65-654	6.52.160
33-1-76	65-654	6.52.170
33-1-77	65-654	6.52.180
33-1-78	Bill No. 76-184 Art. I, 6/1/76	6.52.190
33-1-79	Bill No. 76-184 Art. I, 6/1/76	6.52.200
33-1-80	Bill No. 76-184 Art. I, 6/1/76	6.52.210
33-1-81	Bill No. 76-184 Art. I, 6/1/76	Repealed by 94-1226
33-1-82	Bill No. 76-184 Art. I, 6/1/76	6.52.230
34-1-1	66-928, § 66	11.04.020
34-1-1.1	Bill No. 78-1166 § 1, 1/16/79	11.04.030
34-1-2	66-928, § 66	11.04.040
34-1-3	66-928, § 66	11.04.050
34-1-4	66-928, § 67	11.04.010
34-1-4.1	Bill No. 77-462 §§ 1, 2, 6/7/77; Bill No. 81-645 §§ 1—3, 8/4/81	2.44.090
34-1-4.1.1	Bill No. 88-211 §§ 1—3, 4/5/88	2.44.100
34-1-4.2	Bill No. 79-61 § 1, 12/18/79; Bill No. 80-137 § 1, 3/18/80	2.44.080
34-1-4.3	Bill No. 79-79 § 1, 12/18/79	2.44.110
34-1-5	64-355, § 1	2.44.010
34-1-6	64-355, § 2	2.44.020
34-1-7	64-355, § 3	2.44.030
34-1-8	64-355, § 4	2.44.040
34-1-9	64-355, §§ 7, 8	2.44.070
34-1-10	64-355, § 9	2.44.060
34-1-10.1	Bill No. 74-1163 § 1, 12/17/74	2.44.050
34-1-11		Repealed by 73-721
34-1-12	64-405, § 1	2.44.120
34-1-13	64-405, § 1; Bill No. 76-230 § 1, 8/18/76	2.44.130
34-1-14	64-405, § 2; Bill No. 76-230 § 2, 8/18/76	2.44.160
34-1-15	64-405, § 3; Bill No. 76-230 § 3, 8/18/76; Bill No. 76-270 § 1, 10/5/76; Bill No. 83-1131 § 1, 4/5/83	2.44.150
34-1-16	64-405, § 4	2.44.170
34-1-17	64-405, § 5; Bill No. 76-230 § 4, 8/18/76	2.44.140
34-2-1	Code 1960, § 30-18	11.04.110
34-2-2	Code 1960, § 30-19	11.04.120
34-2-3	Code 1960, § 30-20	11.04.130
34-2-4	Code 1960, § 30-21	11.04.140
34-2-5	Code 1960, § 30-22	11.04.150
34-2-6	Code 1960, § 30-23	1.20.010
34-2-7	Code 1960, § 30-24	1.20.020
34-2-8	Code 1960, § 30-26	1.20.030
34-2-9	Code 1960, § 30-26	1.20.040
35-1-1	Code 1960, § 33-1; 67-111, § 1	12.76.140
35-1-2	Code 1960, § 33-2; 67-111, § 1	12.76.130

Prior Code §	Ordinance History	Herein
35-1-3	Code 1960, § 33-3; 67-111, § 1	12.76.160
35-1-4	Code 1960, § 33-5; 67-111, § 1	12.76.170
35-1-5	Code 1960, § 33-5; 67-111, § 1	12.76.150
35-1-6	Code 1960, § 33-6; 67-111, § 1	12.76.030
35-1-7	Code 1960, § 33-7; 67-111, § 1	12.76.040
35-1-8	Code 1960, § 33-8; 67-111, § 1	12.76.050
35-1-9	Code 1960, § 33-9; 67-111, § 1	12.76.060
35-1-10	Code 1960, § 33-10; 67-111, § 1	12.76.070
35-1-11	Code 1960, § 33-11; 67-111, § 1	12.76.080
35-1-12	Code 1960, § 33-12; 67-111, § 1	12.76.120
36-1-1		Repealed by 88-500
36-1-2	66-928, § 7	10.20.080
36-1-2.1	Bill No. 84-152 §§ 1, 2, 4/3/84	10.20.070
36-1-2.2	Bill No. 88-506 § 1, 10/21/88	10.20.060
36-1-3	Bill No. 72-391 § 1, 3/20/73	10.24.010
36-1-4	Bill No. 72-391 § 2, 3/20/73	10.24.100
36-1-5	Bill No. 72-391 § 3, 3/20/73	10.24.110
36-1-6	Bill No. 72-391 § 4, 3/20/73	10.24.060
36-1-7	Bill No. 72-391 § 5, 3/20/73	10.24.050
36-1-8	Bill No. 72-391 § 6, 3/20/73	10.24.150
36-1-9	Bill No. 72-391 § 7, 3/20/73	10.24.160
36-1-10	Bill No. 72-391 § 8, 3/20/73	10.24.120
36-1-11	Bill No. 72-391 § 9, 3/20/73	10.24.130
36-1-12	Bill No. 72-391 § 10, 3/20/73	10.24.030
36-1-13	Bill No. 72-391 § 11, 3/20/73	10.24.040
36-1-14	Bill No. 72-391 § 12, 3/20/73	Repealed by 90-1339
36-1-15	Bill No. 72-391 § 13, 3/20/73	Repealed by 90-1339
36-1-16	Bill No. 72-391 § 14, 3/20/73	10.24.170
36-1-17	Bill No. 72-391 § 15, 3/20/73	10.24.020
36-1-18	Bill No. 72-391 § 16, 3/20/73	10.24.080
36-1-19	Bill No. 72-391 § 17, 3/20/73	10.24.070
36-1-20	Bill No. 72-391 § 18, 3/20/73	10.24.140
36-1-21	Bill No. 72-391 § 19, 3/20/73	10.24.090
36-1-22	Bill No. 72-391 § 20, 3/20/73	Repealed by 95-1329
36-1-23(a)	Bill No. 82-1036 § 1, 10/5/82; Bill No. 86-1245 § 1, 6/3/86; Bill No. 88-500 § 2, 10/4/88	10.28.010
36-1-23(b)	Bill No. 82-1036 § 1, 10/5/82; Bill No. 86-1245 § 1, 6/3/86; Bill No. 88-500 § 2, 10/4/88	10.28.030(A)
36-1-23(c)	Bill No. 82-1036 § 1, 10/5/82; Bill No. 86-1245 § 1, 6/3/86; Bill No. 88-500 § 2, 10/4/88	10.28.020
36-1-23(d)	Bill No. 82-1036 § 1, 10/5/82; Bill No. 86-1245 § 1, 6/3/86; Bill No. 88-500 § 2, 10/4/88	10.28.030(B)
36-1-23(e)	Bill No. 82-1036 § 1, 10/5/82; Bill No. 86-1245 § 1, 6/3/86; Bill No. 88-500 § 2, 10/4/88	10.28.030(C)
36-1-24	Bill No. 82-1036 § 1, 10/5/82; Bill No. 85-955 § 1, 10/1/85; Bill No. 86-1245 § 2, 6/3/86; Bill No. 88-500 § 3, 10/4/88	10.28.050
36-1-25	Bill No. 82-1036 § 1, 10/5/82; Bill No. 86-1245 § 3, 6/3/86; Bill No. 88-500 § 4, 10/4/88	10.28.060
36-1-26	Bill No. 82-1036 § 1, 10/5/82; Bill No. 88-500 §§ 5, 6, 10/4/88	10.28.070
36-1-27	Bill No. 82-1036 § 1, 10/5/82	10.28.080
36-1-28	Bill No. 82-1036 § 1, 10/5/82	10.28.090
36-1-29	Bill No. 82-1036 § 1, 10/5/82; Bill No. 86-1245 § 4, 6/3/86	10.28.040
36-1-30—36-1-39		Reserved
36-1-40	Bill No. 83-56 § 1, 12/6/83	10.20.010

Prior Code §	Ordinance History	Herein
36-1-41	Bill No. 83-56 § 2, 12/6/83	10.20.020
36-1-42	Bill No. 83-56 § 3, 12/6/83	10.20.030
36-1-43	Bill No. 83-56 § 4, 12/6/83	10.20.040
36-1-44	Bill No. 83-56 § 5, 12/6/83	10.20.050
36-2-1	Code 1960, § 15-2	10.20.340
36-2-2	Code 1960, § 15-3	10.20.350
36-2-3	Code 1960, § 15-4	10.20.360
36-2-4	Code 1960, § 15-5	10.20.370
36-2-5	Code 1960, § 15-6	10.20.380
36-2-6	Code 1960, § 15-7	10.20.390
36-2-7	Bill No. 76-189 § 1, 6/15/76	10.20.090
36-2-8	Bill No. 76-189 § 2, 6/15/76	10.20.100
36-2-9	Bill No. 76-189 § 3, 6/15/76	10.20.110
36-2-10		10.20.120
36-2-11	Bill No. 76-189 § 5, 6/15/76	10.20.140
36-2-12	Bill No. 76-189 § 6, 6/15/76	10.20.150
36-2-13	Bill No. 76-189 § 7, 6/15/76	10.20.160
36-2-14	Bill No. 76-189 § 8, 6/15/76	10.20.170
36-2-15(a)	Bill No. 76-189 § 9, 6/15/76; Bill No. 81-602 § 1, 6/25/81; Bill No. 81-672 §§ 1, 2, 9/15/81; Bill No. 85-804 § 1, 6/25/85; Bill No. 87-1792 § 1, 6/23/87; Bill No. 87-1887 § 1, 8/4/87	10.20.190
36-2-15(b)	Bill No. 76-189 § 9, 6/15/76; Bill No. 81-602 § 1, 6/25/81; Bill No. 81-672 §§ 1, 2, 9/15/81; Bill No. 85-804 § 1, 6/25/85; Bill No. 87-1792 § 1, 6/23/87; Bill No. 87-1887 § 1, 8/4/87	10.20.200—10.20.260
36-2-15(c)	Bill No. 76-189 § 9, 6/15/76; Bill No. 81-602 § 1, 6/25/81; Bill No. 81-672 §§ 1, 2, 9/15/81; Bill No. 85-804 § 1, 6/25/85; Bill No. 87-1792 § 1, 6/23/87; Bill No. 87-1887 § 1, 8/4/87	10.20.270
36-2-15(d)	Bill No. 76-189 § 9, 6/15/76; Bill No. 81-602 § 1, 6/25/81; Bill No. 81-672 §§ 1, 2, 9/15/81; Bill No. 85-804 § 1, 6/25/85; Bill No. 87-1792 § 1, 6/23/87; Bill No. 87-1887 § 1, 8/4/87	10.20.280
36-2-15(e)	Bill No. 76-189 § 9, 6/15/76; Bill No. 81-602 § 1, 6/25/81; Bill No. 81-672 §§ 1, 2, 9/15/81; Bill No. 85-804 § 1, 6/25/85; Bill No. 87-1792 § 1, 6/23/87; Bill No. 87-1887 § 1, 8/4/87	10.20.285
36-2-15(f)		(Repealed by 98-1109)
36-2-16	Bill No. 76-189 § 10, 6/15/76	10.20.290
36-2-17	Bill No. 76-189 § 11, 6/15/76	10.20.300
36-2-18	Bill No. 76-189 § 12, 6/15/76	10.20.310
36-2-19	Bill No. 76-189 § 13, 6/15/76	10.20.180
36-2-20	Bill No. 76-189 § 14, 6/15/76	10.20.320
36-2-21	Bill No. 76-189 § 15, 6/15/76	Repealed by 90-1339
36-2-22	Bill No. 76-189 § 18, 6/15/76	Repealed by 95-1329
36-2-23	Code 1960, § 15-26	10.20.400
36-2-24	Code 1960, § 15-27	10.20.410
36-2-25	Code 1960, § 15-28	10.20.420
36-2-26	Code 1960, § 15-29	10.20.430
37-1-1	Bill No. 73-525 § 1, 6/5/73; Bill No. 73-645 § 1, 9/18/73	6.64.010
37-1-2	Bill No. 73-525 § 1, 6/5/73	6.64.020
37-1-3	Bill No. 73-525 § 1, 6/5/73; Bill No. 73-645 § 2, 9/18/73	Repealed by 96-527
37-1-4	Bill No. 73-525 § 1, 6/5/73	6.64.040
37-1-5	Bill No. 73-525 § 1, 6/5/73	Repealed by 96-527
37-1-6	Bill No. 73-525 § 1, 6/5/73; Bill No. 73-645 § 3, 9/18/73	6.64.060
37-1-7— 37-1-15		Reserved
37-1-16	Bill No. 78-1022 § 2, 10/3/78; Bill No. 84-233 § 1, 4/17/84; Bill No. 87-10 § 1, 10/20/87	6.64.070

Prior Code §	Ordinance History	Herein
37-1-17	Bill No. 78-1022 § 3, 10/3/78; Bill No. 84-233 § 2, 4/17/84; Bill No. 87-10 § 2, 10/20/87	6.64.080
37-1-18	Bill No. 78-1022 § 4, 10/3/78; Bill No. 84-233 § 3, 4/17/84	Repealed by 92-242
37-1-19	Bill No. 78-1022 § 5, 10/3/78; Bill No. 84-233 § 4, 4/17/84	6.64.100
37-1-20	Bill No. 78-1022 § 6, 10/3/78; Bill No. 84-233 § 5, 4/17/84; Bill No. 87-10 §§ 3—5, 10/20/87	6.64.110
37-1-21	Bill No. 78-1022 § 7, 10/3/78; Bill No. 84-233 § 6, 4/17/84	6.64.120
37-1-22		6.64.130
37-1-23	Bill No. 78-1022 § 9, 10/3/78; Bill No. 84-233 § 8, 4/17/84; Bill No. 87-10 § 7, 10/20/87	6.64.140
37-1-24		6.64.150
37-1-25	Bill No. 78-1022 § 11, 10/3/78; Bill No. 87-10 § 8, 10/20/87	6.64.160
37-1-26	Bill No. 78-1022 § 12, 10/3/78; Bill No. 84-233 § 10, 4/17/84	6.64.170
37-1-27	Bill No. 78-1022 § 13, 10/3/78; Bill No. 84-233 § 11, 4/17/84	6.64.180
37-1-28	Bill No. 78-1022 § 14, 10/3/78; Bill No. 84-233 § 12, 4/17/84	6.64.190
37-1-29	6.64.200	
37-1-30	Bill No. 78-1022 §§ 15, 16	Repealed by 82-878
37-1-31	Bill No. 78-1022 § 17, 10/3/78	6.64.220
37-1-32	Bill No. 78-1022 § 18, 10/3/78	6.64.210
37-1-33	Bill No. 78-1022 § 19, 10/3/78	6.64.230
38-1-1	65-539, § 3	13.08.010
38-1-2	65-539, § 8	13.08.030
38-1-2.1	67-255, § 14	Repealed by 91-114
38-1-3	Bill No. 78-1079 §§ 1—3, 10/3/78	13.08.020
38-1-4	66-927, § 4-33	13.08.050
38-1-4.1		13.08.070
38-1-4.2	Bill No. 88-524 § 1, 12/13/88	13.08.060
38-1-5	65-538, § 1	Repealed by 97-758
38-1-6	65-538, § 11; Bill No. 82-990 § 1, 10/5/82	Repealed by 97-758
38-1-7	65-538, § 12	Repealed by 92-292
38-1-8	65-538, § 1	Repealed by 97-758
38-1-9	65-538, § 6	Repealed by 97-758
38-1-10	65-538, § 9	Repealed by 97-758
38-1-11	65-538, § 10; Bill No. 82-990 § 2(1)—(3), 10/5/82	Repealed by 97-758
38-1-12	65-538, § 2	Repealed by 97-758
38-1-13	65-538, § 3	Repealed by 97-758
38-1-14	65-538, § 3	Repealed by 97-758
38-1-15	65-538, § 7	Repealed by 97-758
38-1-16	65-538, § 4	Repealed by 97-758
38-1-17	65-538, § 5	Repealed by 97-758
38-1-18	67-243, § 1	13.04.010
38-1-19	67-243, § 2	13.04.020
38-1-20	67-243, § 2	13.04.030
38-1-21	67-243, § 2	13.04.050
38-1-22	67-243, § 2	13.04.060
38-1-23	67-243, § 3	13.04.070
38-1-24	67-243, § 4	13.04.080
38-1-25	67-243, § 5	13.04.090
38-1-26	67-243, § 6	13.04.100
38-1-27	67-243, § 7	13.04.110
38-1-28		13.04.120
38-1-29	67-243, § 9	13.04.150
38-1-30	67-243, § 10; Bill No. 87-1679 § 1, 4/21/87	13.04.040
38-1-31	67-243, § 11	13.04.130

Prior Code §	Ordinance History	Herein
38-1-32	67-243, § 12	13.04.140
38-2-1	Code 1960, § 36-1	13.32.210
38-2-2	Code 1960, § 36-3	Repealed by 98-1352
38-2-3	Code 1960, § 36-4	13.32.200
38-2-4	Code 1960, § 36-5	13.32.080
38-2-5	Code 1960, § 36-6; Bill No. 79-80 § 1, 12/18/79	Repealed by 91-114
38-2-6	Code 1960, § 36-7	13.32.100
38-2-7	Code 1960, § 36-8	13.32.030
38-2-8	Code 1960, § 36-12	13.32.170
38-2-9	Code 1960, § 36-13	13.32.040
38-2-10	Code 1960, § 36-14	13.32.190
38-2-11	Code 1960, § 36-15	13.32.150
38-2-12	Code 1960, § 36-16	13.32.140
38-2-13	Code 1960, § 36-18	13.32.130
38-2-14	Code 1960, § 36-19	13.32.220
38-2-15	Code 1960, § 36-21	13.32.120
38-2-16	Code 1960, § 36-22	13.32.050
38-2-17	Code 1960, § 36-23	13.32.060
38-2-18	Code 1960, § 36-24	13.32.070
38-2-19	Code 1960, § 36-27	13.32.010
38-2-20	Code 1960, § 36-28	13.32.160
38-2-21	Code 1960, § 36-30	13.32.110
38-2-22	Code 1960, § 36-36	13.32.020
38-2-23	Code 1960, § 36-44	13.28.010
38-2-24	Code 1960, § 36-45	13.28.020
38-2-25	Code 1960, § 36-46; Bill No. 85-882 § 1, 9/17/85	13.28.030
38-2-26	Code 1960, § 36-48	13.28.040
39-1-1	63-33, § 1; 70-1258, § 1; Bill No. 87-60 § 1, 11/17/87	2.100.010
39-1-2	63-33, § 1; 70-1258, § 1	2.100.020
39-1-3	63-33, § 1; 70-1258, § 1	Repealed by BL2000-324
39-1-4	Code 1960, § 38-6; 66-33, § 2; 70-1258, § 1	Repealed by BL2000-324
39-1-5	70-1258, § 1	2.100.060
39-1-6	70-1258, § 1	2.100.040
39-1-7	67-132, § 1; Bill No. 80-139 § 1, 3/18/80	Repealed by BL2000-325
39-1-8	67-132, § 18	Repealed by BL2000-325
39-1-9	67-132, § 19	Repealed by BL2000-325
39-1-10	67-132, § 20; Bill No. 80-139 § 2, 3/18/80	Repealed by BL2000-325
39-1-11	67-132, § 21; 67-330, § 1; Bill No. 74-1027 §§ 1—4, 8/6/74; Bill No. 80-139 § 3, 3/18/80; Bill No. 81-720§ 1, 12/8/81; Bill No. 85-959 § 1, 2/4/86	Repealed by BL2000-325
39-1-12	67-132, § 21; 67-330 § 1; Bill No. 80-139 § 4, 3/18/80	Repealed by BL2000-325
39-1-13	67-132, § 22	Repealed by BL2000-325
39-1-14	67-132, § 23	Repealed by BL2000-325
39-1-15	67-132, § 24	Repealed by BL2000-325

Prior Code §	Ordinance History	Herein
39-1-16	67-132, § 24	Repealed by BL2000-325
39-1-17	67-132, § 24	Repealed by BL2000-325
39-1-18	67-132, § 24	Repealed by BL2000-325
39-1-19	67-132, § 24	Repealed by BL2000-325
39-1-20	67-132, § 24	Repealed by BL2000-325
39-1-21	67-132, § 24; 67-330, § 2; Bill No. 87-1793 § 5, 8/4/87	Repealed by BL2000-325
39-1-22	67-132, § 24	Repealed by BL2000-325
39-1-23	67-132, § 24	Repealed by BL2000-325
39-1-24	67-132, § 24	Repealed by BL2000-325
39-1-25	67-132, § 25; 68-596, § 1	Repealed by BL2000-325
39-1-26	67-132, § 26	Repealed by BL2000-325
39-1-27	67-132, § 27	Repealed by BL2000-325
39-1-28	67-132, § 28; Bill No. 80-139 § 5, 3/18/80	Repealed by BL2000-325
39-1-29	67-132, § 29	Repealed by BL2000-325
39-1-30	67-132, § 29	Repealed by BL2000-325
39-1-31	67-132, § 30	Repealed by BL2000-325
39-1-32	67-132, § 31	Repealed by BL2000-325
39-1-32.1	Bill No. 76-152 §§ 1, 2, 10/5/76; Bill No. 81-530§ 1, 5/19/81	Repealed by BL2000-325
39-1-33	67-132, § 2; Bill No. 80-139 § 6, 3/18/80	Repealed by BL2000-325
39-1-34	67-132, § 3; Bill No. 80-139 § 7, 3/18/80; Bill No. 87-1793 §§ 1, 2, 8/4/87	Repealed by BL2000-325
39-1-35	67-132, § 4; Bill No. 80-139 § 8, 3/18/80; Bill No. 81-609 § 1, 8/4/81; Bill No. 87-1793 § 3, 8/4/87	Repealed by BL2000-325
39-1-36	67-132, § 5	Repealed by BL2000-325
39-1-37	67-132, § 6; Bill No. 84-644 1, 2/5/85	Repealed by BL2000-325
39-1-38	67-132, § 7; Bill No. 80-139 § 9, 3/18/80	Repealed by BL2000-325
39-1-39	67-132, § 8; Bill No. 80-139 § 10, 3/18/80; Bill No. 87-1793 § 4, 8/4/87	Repealed by BL2000-325
39-1-40	67-132, § 9	Repealed by BL2000-325
39-1-41	67-132, § 10; Bill No. 81-529 § 1, 5/19/81; Bill No. 81-638 § 1, 8/4/81	Repealed by BL2000-325

Prior Code §	Ordinance History	Herein
39-1-42	67-132, § 11; Bill No. 80-139 § 11, 3/18/80	Repealed by BL2000-325
39-1-43	67-132, § 12	Repealed by BL2000-325
39-1-44	67-132, § 13	Repealed by BL2000-325
39-1-45	67-132, § 14	Repealed by BL2000-325
39-1-46	67-132, § 14; Bill No. 80-139 § 12, 3/18/80; Bill No. 86-1284 § 1, 6/30/86	Repealed by BL2000-325
39-1-47	67-132, § 15	Repealed by BL2000-325
39-1-48	67-132, § 16	Repealed by BL2000-325
39-1-49	67-132, § 17	Repealed by BL2000-325
39-1-50	70-1258, § 1	Repealed by BL2000-325
39-1-51	70-1258, § 1; Bill No. 73-722 § 1, 12/18/73; Bill No. 82-939 § 1, 8/3/82	Repealed by 96-612
39-1-52	70-1258, § 1	Repealed by 96-612
39-1-53(a)	70-1258, § 1	Repealed by 96-612
39-1-53(b), (part)	70-1258, § 1	Repealed by 96-612
39-1-54	70-1258, § 1; Bill No. 73-564 § 1, 6/19/73; Bill No. 81-532 § 1, 5/19/81; Bill No. 81-533 §§ 1, 2, 5/19/81; Bill No. 81-642 § 1, 8/4/81; Bill No. 82-939 § 2, 8/3/82	Repealed by 96-612
39-1-55	70-1258, § 1; Bill No. 73-838 § 1, 2/19/74; Bill No. 77-777 § 1, 2/21/78; Bill No. 81-535 §§ 1, 2, 5/19/81; Bill No. 81-639 § 1, 8/4/81; Bill No. 81-643 § 1, 8/18/81; Bill No. 86-1330 § 1, 8/5/86; Bill No. 88-247 § 1, 5/17/88	Repealed by 92-269
39-1-56	70-1258, § 1	Repealed by 96-612
39-1-57	70-1258, § 1	Repealed by 96-612
39-1-58	70-1258, § 1	Repealed by 96-612
39-1-59	70-1258, § 1	Repealed by 96-612
39-1-60	70-1258, § 1	Repealed by 96-612
39-1-61	70-1258, § 1	Repealed by 96-612
39-1-62	70-1258, § 1	Repealed by 96-612
39-1-63	70-1258, § 1; Bill No. 73-722 § 2, 12/18/73	Repealed by 96-612
39-1-64	70-1258, § 1	Repealed by 96-612
39-1-65	70-1258, § 1	Repealed by 96-612
39-1-66	70-1258, § 1	Repealed by 96-612
39-1-67	70-1258, § 1	Repealed by 96-612
39-1-68	70-1258, § 1; Bill No. 73-564 § 2, 6/19/73	Repealed by 96-612
39-1-69	70-1258, § 1; Bill No. 73-564 § 3, 6/19/73	Repealed by 96-612
39-1-70	70-1258, § 1	Repealed by 96-612
39-1-71	70-1258, § 1; Bill No. 81-534 § 1, 5/19/81	Repealed by 96-612
39-1-72	70-1258, § 1; Bill No. 82-939 § 3, 8/3/82	Repealed by 96-612
39-1-73	70-1258, § 1	Repealed by 96-612
39-1-74	70-1258, § 1	Repealed by 96-612
39-1-75	70-1258, § 1; Bill No. 73-564 § 4, 6/19/73	Repealed by 96-612
39-1-76	70-1258, § 1; Bill No. 73-564 § 5, 6/19/73	Repealed by 96-612
39-1-77	70-1258, § 1; Bill No. 73-564 § 6, 6/19/73; Bill No. 73-722 § 3, 12/18/73; Bill No. 76-193 § 1, 6/15/76; Bill No. 81-534 § 1, 5/19/81; Bill No. 81-641 § 1, 8/4/81; Bill No. 86-1330 § 2, 8/5/86	Repealed by 96-612
39-1-78	70-1258, § 1; Bill No. 73-564 § 7, 6/19/73	Repealed by 96-612

Prior Code §	Ordinance History	Herein
39-1-79	70-1258, § 1; Bill No. 73-564 § 8, 6/19/73; Bill No. 73-722 § 4, 12/18/73	Repealed by 96-612
39-1-80(part), (a)—(m)	70-1258, § 1	Repealed by 96-612
39-1-80(u)	70-1258, § 1	Repealed by 96-612
39-1-81	70-1258, § 1	Repealed by 96-612
39-1-82	70-1258, § 1	Repealed by 96-612
39-1-83	70-1258, § 1; Bill No. 73-564 § 9, 6/19/73	Repealed by 96-612
39-1-84	70-1258, § 1	Repealed by 96-612
39-1-85	70-1258, § 1	Repealed by 96-612
39-1-86	70-1258, § 1; Bill No. 83-1198 § 2, 5/17/83; Bill No. 86-1330 § 3, 8/5/86	Repealed by 96-612
39-1-87	70-1258, § 1	Repealed by 96-612
39-1-88	70-1258, § 1	Repealed by 96-612
39-1-89	70-1258, § 1; Bill No. 83-1198 § 1, 5/17/83	Repealed by 96-612
39-1-90	70-1258, § 1	Repealed by 96-612
39-1-91	70-1258, § 1	Repealed by 96-612
39-2-1	Code 1960, § 38-1	Repealed by 95-109
39-2-2	Code 1960, § 38-2	Repealed by 95-109
39-2-3	Code 1960, § 38-23	Repealed by 95-109
39-2-4	Code 1960, § 38-24	Repealed by 95-109
39-2-5	Code 1960, § 38-25	Repealed by 95-109
39-2-6	Code 1960, § 38-26	Repealed by 95-109
39-2-7	Code 1960, § 38-27	Repealed by 95-109
39-2-8	Code 1960, § 38-28	Repealed by 95-109
39-2-9	Code 1960, § 38-29	Repealed by 95-109
39-2-10	Code 1960, § 38-30	Repealed by 95-109
39-2-11	Code 1960, § 38-31	Repealed by 95-109
39-2-12	Code 1960, § 38-32	Repealed by 95-109
40-1-1	63-2, § 1	2.52.010
40-1-2	63-2, § 1	2.52.020
40-1-3	66-85, § 1	2.52.030
40-1-4	63-11, §§ 1, 2	2.52.040
40-1-4.1	Bill No. 77-736 §§ 1, 2, 1/17/78; Bill No. 88-332§§ 1—3, 7/19/88	15.08.010
40-1-4.2	Bill No. 88-333 §§ 1—3, 7/19/88	15.08.020
40-1-5(a)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.010(A)
40-1-5(a)(1)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.030
40-1-5(a)(2)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.040
40-1-5(a)(3)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.050
40-1-5(a)(4)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.060
40-1-5(a)(5)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.070
40-1-5(a)(6)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.080
40-1-5(a)(7)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.090
40-1-5(a)(8)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.100
40-1-5(a)(9)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.110
40-1-5(a)(10)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.120

Prior Code §	Ordinance History	Herein
40-1-5(a)(11)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.130
40-1-5(a)(12)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.140
40-1-5(a)(13)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.150
40-1-5(a)(14)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.160
40-1-5(a)(15)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.170
40-1-5(a)(16)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.180
40-1-5(a)(17)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.190
40-1-5(a)(18)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.200
40-1-5(a)(19)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.210
40-1-5(a)(20)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.220
40-1-5(a)(21)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343 § I, 10/7/80	15.04.230
40-1-5(a)(22)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.240
40-1-5(a)(23)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.260
40-1-5(a)(24)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.270
40-1-5(a)(25)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.250
40-1-5(a)(26)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.280
40-1-5(a)(27)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.290
40-1-5(a)(28)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.300
40-1-5(a)(29)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.310
40-1-5(a)(30)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.320
40-1-5(a)(31)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.330
40-1-5(a)(32)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.340
40-1-5(a)(33)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.350
40-1-5(a)(34)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.360
40-1-5(a)(35)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.370
40-1-5(a)(36)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.380
40-1-5(a)(37)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.390

Prior Code §	Ordinance History	Herein
40-1-5(a)(38)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.400
40-1-5(a)(39)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.410
40-1-5(a)(40)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.420
40-1-5(a)(41)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.430
40-1-5(a)(42)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.440
40-1-5(b)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.020
40-1-5(c)	Bill No. 65-412 § 1; Bill No. 69-747 § 1; Bill No. 71-34, § 1; Bill No. 78-837 § 1, 4/4/78; Bill No. 80-343§ I, 10/7/80	15.04.010(B)
40-1-6	65-412, § 1; 69-747, § 2	15.12.090
40-1-6.1	69-747, § 3	15.12.100
40-1-7	65-412, § 1	15.12.020
40-1-8	65-412, § 1	15.12.030
40-1-9	65-412, § 1; 71-34, § 2	15.12.040
40-1-10	65-412, § 1	15.12.060
40-1-11	65-412, § 1	15.12.050
40-1-12	65-412, § 1	15.12.070
40-1-13	65-412, § 1	15.12.010
40-1-14	65-412, § 1	15.12.200
40-1-15	65-412, § 1	15.12.130
40-1-16	65-412, § 1	15.12.140
40-1-17	65-412, § 1	15.12.190
40-1-18	65-412, § 1	15.12.180
40-1-19	65-412, § 1	15.12.170
40-1-20	65-412, § 1	15.12.110
40-1-21	65-412, § 1	15.12.150
40-1-22	65-412, § 1	15.12.160
40-1-23	65-412, § 1	15.12.120
40-1-24	65-412, § 1	15.12.210
40-1-25	65-412, § 1	15.12.220
40-1-26	65-412, § 1	15.12.230
40-1-27	65-412, § 1	Repealed by 95-1329
40-1-27.1	70-1041, § 7	15.12.080
40-1-28	65-412, § 1	15.16.010
40-1-29	65-412, § 1	15.16.020
40-1-30	65-412, § 1	15.16.030
40-1-31	65-412, § 1	15.16.040
40-1-32	65-412, § 1	15.16.180
40-1-33	65-412, § 1	15.16.190
40-1-34	65-412, § 1	15.16.200
40-1-35	65-412, § 1	15.16.210
40-1-36	65-412, § 1	15.16.220
40-1-37	65-412, § 1	15.16.140
40-1-38	65-412, § 1	15.16.150
40-1-39	65-412, § 1	15.16.160
40-1-40	65-412, § 1	15.16.330
40-1-41	65-412, § 1	15.16.340
40-1-42	65-412, § 1	15.16.320
40-1-43	65-412, § 1	15.16.240

Prior Code §	Ordinance History	Herein
40-1-44	65-412, § 1	15.16.260
40-1-45	65-412, § 1	15.16.270
40-1-46	65-412, § 1	15.16.280
40-1-47	65-412, § 1	15.16.250
40-1-48	65-412, § 1	15.16.310
40-1-49	65-412, § 1	15.16.290
40-1-50	65-412, § 1	15.16.300
40-1-51	65-412, § 1	15.16.230
40-1-52	65-412, § 1	15.16.130
40-1-53	65-412, § 1	15.16.350
40-1-54	65-412, § 1	15.16.360
40-1-54.1	Ord. No. 75-1229 § 1, 5/6/75	15.16.170
40-1-55	65-412, § 1	15.16.370
40-1-56	65-412, § 1	15.16.390
40-1-57	65-412, § 1	15.16.400
40-1-58	65-412, § 1	15.16.410
40-1-59	65-412, § 1	15.16.480
40-1-60	65-412, § 1	15.16.450
40-1-61	65-412, § 1	15.16.460
40-1-62	65-412, § 1	15.16.380
40-1-63	65-412, § 1	15.16.420
40-1-64	65-412, § 1	15.16.430
40-1-65	65-412, § 1	15.16.440
40-1-66	65-412, § 1	15.16.470
40-1-67	65-412, § 1	15.16.490
40-1-68	65-412, § 1	15.16.500
40-1-69	65-412, § 1	15.16.050
40-1-70	65-412, § 1	15.16.060
40-1-71	65-412, § 1	15.16.080
40-1-72	65-412, § 1	15.16.070
40-1-73	65-412, § 1	15.16.090
40-1-74	65-412, § 1	15.16.100
40-1-75	65-412, § 1	15.16.110
40-1-76	65-412, § 1	15.16.120
40-1-77	65-412, § 1	15.24.010
40-1-78	65-412, § 1	15.24.020
40-1-79	65-412, § 1	15.24.030
40-1-80	65-412, § 1	15.24.040
40-1-81	65-412, § 1	15.24.050
40-1-82	65-412, § 1	15.24.060
40-1-83	65-412, § 1	15.24.070
40-1-84	65-412, § 1	15.24.080
40-1-85	65-412, § 1	15.24.130
40-1-86	65-412, § 1	15.24.120
40-1-87	65-412, § 1	15.24.090
40-1-88	65-412, § 1; 70-1036, § 1	15.24.100
40-1-89	65-412, § 1	15.24.110
40-1-90	65-412, § 1	15.24.140
40-1-91	65-412, § 1	15.20.010
40-1-92	65-412, § 1; Bill No. 73-487 § 6, 4/17/73; Bill No. 73-589 § 1, 8/7/73; Bill No. 74-1174 § 1, 1/21/75	15.20.030
40-1-93	65-412, § 1; Bill No. 73-487 § 7, 4/17/73	15.20.050
40-1-94	65-412, § 1	15.20.060
40-1-95	65-412, § 1	15.20.070

Prior Code §	Ordinance History	Herein
40-1-96	65-412, § 1	15.20.080
40-1-97	65-412, § 1	15.20.090
40-1-98	65-412, § 1	15.20.100
40-1-99	65-412, § 1; Bill No. 73-487 § 8, 4/17/73	15.20.040
40-1-100	65-412, § 1	15.20.020
40-1-101	65-412, § 1	15.36.010
40-1-102	65-412, § 1; Bill No. 73-487 § 9, 4/17/73; Bill No. 74-1174 § 2, 1/21/75; Bill No. 82-1034 § 6, 10/5/82	15.36.020
40-1-102.1	Bill No. 84-142 §§ 1—6, 2/21/84	15.36.040
40-1-102.2		15.36.030
40-1-103	65-412, § 1; Bill No. 82-1034 § 7, 10/5/82	15.36.060
40-1-104	65-412, § 1; Bill No. 73-487 § 10, 4/17/73; Bill No. 82-1034 § 8, 10/5/82	15.36.070
40-1-105	65-412, § 1	15.36.080
40-1-106	65-412, § 1	15.36.090
40-1-107	65-412, § 1	15.36.100
40-1-108	65-412, § 1	15.36.110
40-1-109	65-412, § 1; Bill No. 73-487 § 11, 4/17/73; Bill No. 82-1034 § 9, 10/5/82	15.36.050
40-1-110	65-412, § 1	15.36.120
40-1-111	65-412, § 1	15.48.010
40-1-112	65-412, § 1	15.48.020
40-1-113	65-412, § 1	Repealed by 93-822
40-1-114	65-412, § 1	15.48.060
40-1-115	65-412, § 1	15.48.120
40-1-116	65-412, § 1	15.48.050
40-1-117	65-412, § 1	Repealed by 94-1242
40-1-118	65-412, § 1	15.48.110
40-1-119	65-412, § 1	15.48.080
40-1-120	65-412, § 1	15.48.100
40-1-121	65-412, § 1	Repealed by 94-1242
40-1-122	65-412, § 1	15.48.190
40-1-123	65-412, § 1	15.48.200
40-1-124	65-412, § 1	15.48.170
40-1-125	65-412, § 1; 71-1409, § 1	15.48.180
40-1-126	65-412, § 1	15.48.140
40-1-127	65-412, § 1	15.48.150
40-1-128	65-412, § 1	15.48.160
40-1-129	65-412, § 1	15.48.210
40-1-130	65-412, § 1; Bill No. 82-917 § 1, 6/15/82	15.48.220
40-1-131	65-412, § 1	15.48.230
40-1-132	65-412, § 1	15.48.240
40-1-133	65-412, § 1	15.48.250
40-1-134	65-412, § 1	15.48.130
40-1-135	65-412, § 1	15.48.040
40-1-136		Repealed by 92-469
40-1-137	Bill No. 85-1037 § 6, 11/21/85	15.32.010
40-1-138	65-412, § 1	15.32.190
40-1-139		Repealed by 92-469
40-1-140	65-412, § 1	15.32.060
40-1-141	65-412, § 1	15.32.180
40-1-142		Repealed by 83-1195
40-1-143	65-412, § 1	15.32.170
40-1-144		Repealed by 94-1239
40-1-145		15.32.030
40-1-146	65-412, § 1	15.32.070

Prior Code §	Ordinance History	Herein
40-1-147	65-412, § 1	15.32.080
40-1-148	65-412, § 1	Repealed by 94-1240
40-1-149	65-412, § 1	15.32.100
40-1-149.1	Bill No. 77-566 § 1, 7/19/77	15.32.110
40-1-150	65-412, § 1	15.32.040
40-1-151	65-412, § 1	15.32.120
40-1-152	65-412, § 1	15.32.130
40-1-153	65-412, § 1	15.32.140
40-1-154	65-412, § 1	15.32.150
40-1-155	65-412, § 1	15.32.200
40-1-156		Repealed by 92-469
40-1-157	65-412, § 1	15.44.030
40-1-158	Bill No. 85-1037 § 6, 11/21/85	15.44.010
40-1-159	65-412, § 1	15.44.040
40-1-160	65-412, § 1	15.44.050
40-1-161—40-1-162		Repealed by 78-837
40-1-163	65-412, § 1	15.56.010
40-1-164	65-412, § 1	15.56.020
40-1-165	65-412, § 1	15.56.030
40-1-166	65-412, § 1	15.56.050
40-1-167	65-412, § 1	15.56.040
40-1-168	65-412, § 1	15.56.060
40-1-169	65-412, § 1	15.28.020
40-1-170	65-412, § 1	Repealed by 95-1513
40-1-171	65-412, § 1	15.28.040
40-1-172	65-412, § 1	15.28.050
40-1-173	65-412, § 1	15.28.010
40-1-174	65-412, § 1	15.40.020
40-1-175	65-412, § 1	15.40.030
40-1-176	65-412, § 1	15.40.040
40-1-177	65-412, § 1	15.40.050
40-1-178	65-412, § 1	15.40.060
40-1-179	65-412, § 1	15.40.010
40-1-180	65-412, § 1	15.40.070
40-1-180.1		Reserved
40-1-181	65-412, § 1	15.40.080
40-1-182	65-412, § 1	15.40.090
40-1-183	65-412, § 1	15.40.100
40-1-184	65-412, § 1	15.40.110
40-1-185	Bill No. 80-343 § 2, 10/7/80	15.60.010
40-1-186(a)	Bill No. 80-343 § 2, 10/7/80	15.60.020
40-1-186(b)	Bill No. 80-343 § 2, 10/7/80	15.60.080
40-1-186(c)	Bill No. 80-343 § 2, 10/7/80	15.60.060
40-1-186(d)	Bill No. 80-343 § 2, 10/7/80	15.60.050
40-1-186(e)	Bill No. 80-343 § 2, 10/7/80	15.60.100
40-1-186(f)	Bill No. 80-343 § 2, 10/7/80	15.60.110
40-1-186(g)	Bill No. 80-343 § 2, 10/7/80	15.60.150
40-1-186(h)	Bill No. 80-343 § 2, 10/7/80	15.60.120
40-1-186(i)	Bill No. 80-343 § 2, 10/7/80	15.60.160
40-1-186(j)	Bill No. 80-343 § 2, 10/7/80	15.60.130
40-1-186(k)	Bill No. 80-343 § 2, 10/7/80	15.60.140
40-1-186(l)	Bill No. 80-343 § 2, 10/7/80	15.60.070
40-1-186(m)	Bill No. 80-343 § 2, 10/7/80	15.60.090
40-1-186(n)	Bill No. 80-343 § 2, 10/7/80	15.60.040

Prior Code §	Ordinance History	Herein
40-1-186(o)	Bill No. 80-343 § 2, 10/7/80	15.60.030
40-1-186(p)	Bill No. 80-343 § 2, 10/7/80	15.60.170
40-1-187 Part I (a)	Bill No. 80-343 § 2, 10/7/80	15.60.200
40-1-187 Part I (b)	Bill No. 80-343 § 2, 10/7/80	15.60.210
40-1-187 Part I (c)	Bill No. 80-343 § 2, 10/7/80	15.60.220
40-1-187 Part I (d)	Bill No. 80-343 § 2, 10/7/80	15.60.230
40-1-187 Part I (e)	Bill No. 80-343 § 2, 10/7/80	15.60.240
40-1-187 Part I (f)	Bill No. 80-343 § 2, 10/7/80	15.60.250
40-1-187 Part I (g)	Bill No. 80-343 § 2, 10/7/80	15.60.260
40-1-187 Part I (h)	Bill No. 80-343 § 2, 10/7/80	15.60.270
40-1-187 Part I (i)	Bill No. 80-343 § 2, 10/7/80	15.60.280
40-1-187 Part I (j)	Bill No. 80-343 § 2, 10/7/80	15.60.290
40-1-187 Part I (k)	Bill No. 80-343 § 2, 10/7/80	15.60.300
40-1-187 Part I (l)	Bill No. 80-343 § 2, 10/7/80	15.60.310
40-1-187 Part I (m)	Bill No. 80-343 § 2, 10/7/80	15.60.320
40-1-187 Part II	Bill No. 80-343 § 2, 10/7/80	15.60.180
40-1-188 Part I	Bill No. 80-343 § 2, 10/7/80	15.60.340
40-1-188 Part II		15.60.190
40-1-189	Bill No. 80-343 § 2, 10/7/80	15.60.330
40-1-190 Part I	Bill No. 80-343 § 2, 10/7/80	Repealed by 97-729
40-1-190 Part II	Bill No. 80-343 § 2, 10/7/80	Repealed by 97-729
40-1-190.1 Part I (a)	Bill No. 80-343 § 2, 10/7/80	Repealed by 97-729
40-1-190.1 Part I (b)	Bill No. 80-343 § 2, 10/7/80	Repealed by 97-729
40-1-190.1 Part I (c)	Bill No. 80-343 § 2, 10/7/80	Repealed by 97-729
40-1-190.1 Part I (d)	Bill No. 80-343 § 2, 10/7/80	Repealed by 97-729
40-1-190.1 Part I (e)	Bill No. 80-343 § 2, 10/7/80	Repealed by 97-729
40-1-190.1 Part I (f)	Bill No. 80-343 § 2, 10/7/80	Repealed by 97-729
40-1-190.1 Part I (g)	Bill No. 80-343 § 2, 10/7/80	Repealed by 97-729
40-1-190.1 Part I (h)	Bill No. 80-343 § 2, 10/7/80	Repealed by 97-729
40-1-190.1 Part I (i)	Bill No. 80-343 § 2, 10/7/80	Repealed by 97-729
40-1-190.1 Part I (j)	Bill No. 80-343 § 2, 10/7/80	Repealed by 97-729
40-1-190.1 Part II	Bill No. 80-343 § 2, 10/7/80	Repealed by 95-1329
40-1-191		Reserved
40-1-192	Bill No. 74-1029 § 1, 8/6/74	15.52.010
40-1-193	65-412, § 1; Bill No. 77-605 § 1, 8/2/77	15.52.020
40-1-194	65-412, § 1	15.52.030
40-1-195	65-412, § 1	15.52.040
40-1-196—40-1-225		Reserved
40-1-226	Bill No. 78-840 § 1, 10/3/78	15.64.010
40-1-227	Bill No. 78-840 § 2, 10/3/78	15.64.020
40-1-228	Bill No. 78-840 § 3, 10/3/78	15.64.030
40-1-229(a)	Bill No. 78-840 § 4, 10/3/78	15.64.040
40-1-229(b)	Bill No. 78-840 § 4, 10/3/78	15.64.050
40-1-229(c)	Bill No. 78-840 § 4, 10/3/78	15.64.060
40-1-229(d)	Bill No. 78-840 § 4, 10/3/78	15.64.070
40-1-229(e)	Bill No. 78-840 § 4, 10/3/78	15.64.080
40-1-229(f)	Bill No. 78-840 § 4, 10/3/78	15.64.090
40-1-229(g)	Bill No. 78-840 § 4, 10/3/78	15.64.100
40-1-230(a)	Bill No. 78-840 § 5, 10/3/78	15.64.120
40-1-230(b)	Bill No. 78-840 § 5, 10/3/78	15.64.130
40-1-230(c)	Bill No. 78-840 § 5, 10/3/78	15.64.140
40-1-231(a)	Bill No. 78-840 § 6, 10/3/78	15.64.160
40-1-231(b)	Bill No. 78-840 § 6, 10/3/78	15.64.180
40-1-231(c)	Bill No. 78-840 § 6, 10/3/78	15.64.200

Prior Code §	Ordinance History	Herein
40-1-231(d)	Bill No. 78-840 § 6, 10/3/78	15.64.170
40-1-231(e)	Bill No. 78-840 § 6, 10/3/78	15.64.210
40-1-231(f)	Bill No. 78-840 § 6, 10/3/78	15.64.150
40-1-232	Bill No. 78-840 § 7, 10/3/78	15.64.110
40-1-233	Bill No. 78-840 § 8, 10/3/78	Repealed by 95-1329
40-1-234	Bill No. 78-840 § 9, 10/3/78	15.64.190
41-2-1	Code 1960, § 40-1	11.36.010
41-2-2	Code 1960, § 40-2	11.36.060
41-2-3	Code 1960, § 40-3	11.36.070
41-2-4	Code 1960, § 40-4	11.36.100
41-2-5	Code 1960, § 40-5	11.36.090
41-2-6	Code 1960, § 40-6	11.36.020
41-2-7	Code 1960, § 40-7	11.36.030
41-2-8	Code 1960, § 40-8	11.36.040
41-2-9	Code 1960, § 40-9	11.36.080
41-2-10	Code 1960, § 40-10	11.36.050
41-2-11	Code 1960, § 40-12	11.36.110
41-2-12	Code 1960, § 40-13	11.36.120
42-1-1	64-35, § 1	6.76.010
42-1-2	64-365, § 1; Bill No. 81-779 § 3, 1/19/82	6.76.020
42-1-3	64-365, § 26	6.76.030
42-1-4	64-365, § 3	6.76.040
42-1-5	64-365, § 4	6.76.050
42-1-6	64-365, § 5	6.76.060
42-1-7	64-365, § 6	Repealed by 98-1191
42-1-8	64-365, § 7	6.76.090
42-1-9	64-365, § 8	6.76.110
42-1-10	64-365, § 9; Bill No. 81-779 § 2, 1/19/82	6.76.100
42-1-11	64-365, § 10	6.76.120
42-1-12	64-365, § 11	6.76.130
42-1-13	64-365, § 12	6.76.140
42-1-14	64-365, § 13	6.76.080
42-1-15	64-365, § 14	6.76.150
42-1-16	64-365, § 15	6.76.160
42-1-17	64-365, § 16	6.76.170
42-1-18	64-365, § 17	6.76.200
42-1-19	64-365, § 18	6.76.210
42-1-20	64-365, § 19	6.76.220
42-1-21	64-365, § 20	6.76.230
42-1-22	64-365, § 21	6.76.240
42-1-23	64-365, § 21	6.76.250
42-1-24	64-365, § 22	6.76.260
42-1-25	64-365, § 23	6.76.270
42-1-26	64-365, § 24	6.76.280
42-1-27	64-365, § 25	6.76.290
42-1-28	64-365, § 26; Bill No. 79-1353 § 1, 6/5/79; Bill No. 81-779 § 2, 1/19/82; Bill No. 84-589 § 1, 1/15/85	Repealed by 89-1038
42-1-29	64-365, § 27	6.76.300
42-1-30	64-365, § 28	6.76.190
42-1-31	64-365, § 29	6.76.180
42-1-32	64-365, § 31	6.68.010
42-1-33	64-365, § 33	6.68.020
42-1-34	64-365, § 33	6.68.030
42-1-35	64-365, § 34; Bill No. 81-779 § 3, 1/9/82	6.68.040

Prior Code §	Ordinance History	Herein
42-1-36	64-365, § 40	6.68.050
42-1-37	64-365, § 36	6.68.060
42-1-38	64-365, § 35; Bill No. 81-779 §§ 2, 3, 1/9/82	6.68.070
42-1-39	64-365, § 37	6.68.090
42-1-40	64-365, § 41	6.68.080
42-1-41		6.68.100
42-1-42		6.68.110
42-1-43		6.68.120
42-1-44		6.68.130
42-1-45		6.68.140
42-1-46		6.68.160
42-1-47		6.68.170
42-1-48		6.68.150
Zoning Regulations		
		All provisions derive from Bill No. 73-650 § 2, 12/17/74; only later changes are shown below.
11.00		Repealed by 96-555
11.01		Repealed by 96-555
11.02		Repealed by 96-555
11.03		Repealed by 96-555
11.10		Repealed by 96-555
11.11		Repealed by 96-555
11.111		Repealed by 96-555
11.112		Repealed by 96-555
11.12		Repealed by 96-555
11.121		Repealed by 96-555
11.13		Repealed by 96-555
11.131	Bill No. 78-1120 § 1, 1/16/79; Bill No. 79-102 § 1, 3/18/80; Bill No. 83-1218 § 1.1, 5/17/83; Bill No. 84-263 § 1(1), 5/15/84; Bill No. 84-269 § 1(1), 5/15/84; Bill No. 84-178 § 1(10), 3/19/85; Bill No. 85-934 §§ 1.1, 1.2, 9/17/85; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
11.20		Repealed by 96-555
11.30		Repealed by 96-555
11.31		Repealed by 96-555
11.311		Repealed by 96-555
11.312		Repealed by 96-555
11.313	Bill No. 75-18 § 1, 12/9/75	Repealed by 96-555
11.40	Bill No. 75-44 § 1, 1/20/76	Repealed by 96-555
12.00		Repealed by 96-555
12.01		Repealed by 96-555
12.02		Repealed by 96-555
12.10	Bill No. 73-1029 § 1, 11/21/78; Bill No. 77-649 § 1, 9/20/77; Bill No. 76-223 § 1, 7/20/76; Bill No. 78-843 § 1, 10/3/78; Bill No. 78-1176 § 1, 2/20/79; Bill No. 78-1177 § 1, 2/20/79; Bill No. 82-943 § 1, 7/20/82; Bill No. 83-27 § 1, 11/15/83; Bill No. 83-1143 § 1.1, 3/15/83; Bill No. 84-178 § 1(1), 3/19/85; Bill No. 84-247 § 1(1), (2), 5/15/84; Bill No. 86-1454 § 1, 11/18/86; Bill No. 86-1488 § 1(1), 11/18/86; Bill No. 87-1760 § 1(1), 5/19/87	Repealed by 96-555
13.00		Repealed by 96-555

Prior Code §	Ordinance History	Herein
13.10	Bill No. 77-477 § 1, 5/17/77; Bill No. 78-1175 § 1, 2/20/79; Bill No. 78-1178 § 1, 2/20/79; Bill No. 85-934 § 1.3, 9/17/85; Bill No. 87-1759 § 1, 5/19/87	Repealed by 96-555
13.20		Repealed by 96-555
13.21	Bill No. 76-223 § 1, 7/20/76; Bill No. 78-1177 § 1, 2/20/79; Bill No. 81-557 § 1, 5/19/81; Bill No. 83-1143 § 1.2, 3/15/83; Bill No. 85-934 § 1.4, 9/17/85; Bill No. 86-1184 § 1, 5/20/86; Bill No. 87-1882 § 1, 8/18/87; Bill No. 87-108 § 1, 1/1/88	Repealed by 96-555
13.30		Repealed by 96-555
13.31		Repealed by 96-555
13.32		Repealed by 96-555
13.33		Repealed by 96-555
13.40		Repealed by 96-555
13.41	Bill No. 83-1148 § 1.1, 3/15/83	Repealed by 96-555
13.50		Repealed by 96-555
13.51	Bill No. 77-649 § 2, 9/20/77; Bill No. 77-668 § 1, 9/20/77; Bill No. 79-100 § 1(1), 5/20/80; Bill No. 79-104 § 1(1), 3/18/80; Bill No. 80-206 § 1(1), 6/5/80; Bill No. 82-896 § 1, 5/18/82; Bill No. 83-1148 § 1.2, 3/15/83; Bill No. 86-1184 § 2, 5/20/86; Bill No. 87-1760 § 1(2), 5/19/87	Repealed by 96-555
13.60		Repealed by 96-555
13.61	Bill No. 77-649, § 2, 9-20-77; Bill No. 77-668, § 1, 9-20-77; Bill No. 79-100, § 1(1), 5-20-80; Bill No. 79-104, § 1(1), 3-18-80; Bill No. 80-206, § 1(1), 6-5-80; Bill No. 82-896, § 1, 5-18-82; Bill No. 83-1148, § 1.2, 3-15-83; Bill No. 86-1184, § 2, 5-20-86; Bill No. 87-1760, § 1(2), 5-19-87	Repealed by 96-555
13.70		Repealed by 96-555
13.71	Bill No. 81-019 § 1, 7/21/81; Bill No. 88-232 § 1(1), 5/17/88	Repealed by 96-555
13.80		Repealed by 96-555
13.81	Bill No. 86-1488 § 1(2), 11/18/86	Repealed by 96-555
21.00		Repealed by 96-555
21.10		Repealed by 96-555
21.11		Repealed by 96-555
21.12		Repealed by 96-555
21.13		Repealed by 96-555
21.14		Repealed by 96-555
21.15		Repealed by 96-555
21.16	Bill No. 84-263 § 1(2)—(5), 5/15/84; Bill No. 84-269§ 1(2), § 1(2), 5/15/84; Bill No. 85-934 § 8, 9/17/85; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
21.20	Ord. No. 82-943 § 2, 7/20/82	Repealed by 96-555
A21.00—A21.20		See entries following § 24.68
22.00		Repealed by 96-555
22.10	Bill No. 74-1184 § 1, 3/18/75; Bill No. 81-785 § 1(1), 3/16/82; Bill No. 84-263 § 1(6), 5/15/84; Bill No. 84-269 § 1(3), 5/15/84; Bill No. 85-934 §§ 9, 10, 9/17/85; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
22.20	Bill No. 74-1184 § 1, 3/18/75; Bill No. 77-477 § 1, 5/17/77; Bill No. 78-1175 § 1, 2/20/79; Bill No. 78-1176 § 1, 2/20/79; Bill No. 78-1177 § 1, 2/20/79; Bill No. 78-1178 § 1, 2/20/79; Bill No. 81-785 § 1(2), 3/16/82; Bill No. 84-263 § 1(7), 5/15/84; Bill No. 84-269 § 1(4), 5/15/84; Bill No. 85-934 §§ 1.22, 1.12, 9/17/85; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
22.30		Repealed by 92-430
22.31		Repealed by 92-430
22.32		Repealed by 92-430
22.33		Repealed by 92-430

Prior Code §	Ordinance History	Herein
22.331		Repealed by 92-430
22.332		Repealed by 92-430
22.34		Repealed by 92-430
22.341		Repealed by 92-430
22.342		Repealed by 92-430
22.35		Repealed by 92-430
22.351		Repealed by 92-430
22.352		Repealed by 92-430
22.353	Bill No. 78-1029 § 1, 12/21/78; Bill No. 80-244 § 1, 8/5/80; Bill No. 84-263 § 1(6)—(16), 5/15/84; Bill No. 84-269 § 1(5)—(13), 5/15/84; Ord. No. 87-1668 § 1, 5/17/87	Repealed by 92-430
A22.00—A22.40		See entries following § 24.68
23.00		Repealed by 96-555
23.01		Repealed by 96-555
23.02		Repealed by 96-555
23.10		Repealed by 96-555
23.11		Repealed by 96-555
23.12		Repealed by 96-555
23.13		
23.14	Bill No. 84-263 § 1(17)—(19), 5/15/84; Bill No. 84-269 § 1 (14)—(16), 5/15/84; Bill No. 87-1668 § 1, 5/17/87; Bill No. 88-237 § 1, 5/17/88	Repealed by 96-555
23.20		Repealed by 96-555
23.21		Repealed by 96-555
23.211		Repealed by 96-555
23.212		Repealed by 96-555
23.22		Repealed by 96-555
23.23		Repealed by 96-555
23.24		Repealed by 96-555
23.25		Repealed by 96-555
23.26		Repealed by 96-555
23.27		Repealed by 96-555
23.28	Bill No. 74-1184 § 1, 3/18/75; Bill No. 75-1253 § 1, 6/3/75; Bill No. 76-223 § 1, 7/20/76; Bill No. 81-785 § 1(3), 3/16/82; Bill No. 82-943 § 3, 7/20/82; Bill No. 82-987 § 1, 9/21/82; Bill No. 82-1123, 3/15/83; Bill No. 83-28 § 1, 12/10/83; Bill No. 83-1274 § 1, 7/19/83; Bill No. 84-263 § 1(20)—(27), 5/15/84; Bill No. 84-269 § 1 (16)—(21), 5/15/84; Bill No. 85-934 § 1.13, 9/17/85; Bill No. 86-1488 § 1(3), 11/18/86; Bill No. 87-1668 § 1, 5/17/87; Bill No. 87-45 § 1, 11/17/87; Bill No. 87-71 § 1, 2/2/88	Repealed by 96-555
23.30		Repealed by 96-555
23.31		Repealed by 96-555
23.32	Bill No. 75-1253 § 1, 6/3/75; Bill No. 84-263 § 1(28), (29), 5/15/84; Bill No. 84-269 § 1(22), (23), 5/15/84; Bill No. 84-390 § 1, 7/17/84; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
23.40		Repealed by 96-555
23.41		Repealed by 96-555
23.42		Repealed by 96-555
23.43	Bill No. 76-223 § 1, 7/20/76	Repealed by 96-555
23.44		Repealed by 96-555
23.45	Bill No. 756-1253 § 1, 6/3/75	Repealed by 96-555
23.50		Repealed by 96-555
23.51		Repealed by 96-555
23.511		Repealed by 96-555

Prior Code §	Ordinance History	Herein
23.512		Repealed by 96-555
23.52		Repealed by 96-555
23.521		Repealed by 96-555
23.522		Repealed by 96-555
23.523		Repealed by 96-555
23.53		Repealed by 96-555
23.54		Repealed by 96-555
23.541		Repealed by 96-555
23.542		Repealed by 96-555
23.543		Repealed by 96-555
23.544		Repealed by 96-555
23.545		Repealed by 96-555
23.546		Repealed by 96-555
23.547	Bill No. 74-1184 § 1, 3/18/75; Bill No. 75-1253 § 1, 6/3/75; Bill No. 80-428 § 1, 5/19/78; Bill No. 83-27 § 1, 11/15/83; Bill No. 84-180 § 1, 3/20/84; Bill No. 84-263 § 1(30)—(41), 5/15/84; Bill No. 84-269 § 1 (24)—(27), 5/15/84; Bill No. 85-934 §§ 1.14—1.16, 9/17/85; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
23.60		Repealed by 96-555
23.61	Bill No. 76-223 § 1, 7/20/76; Bill No. 84-263 § 1(42), 5/15/84; Bill No. 84-269 § 1(27), 5/15/84; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
23.70		Repealed by 96-555
23.71		Repealed by 96-555
23.710		Repealed by 96-555
23.711		Repealed by 96-555
23.712		Repealed by 96-555
23.72	Bill No. 76-223 § 1, 7/20/76; Bill No. 84-263§ 1(43)—(46), 5/15/84; Bill No. 84-269 § 1(27), 5/15/84; Bill No. 87-1668 § 1, 5/17/87; Bill No. 87-46 § 1(2), (4), 11/17/87	Repealed by 95-1491
23.80		Repealed by 95-1491
23.81		Repealed by 95-1491
23.82		Repealed by 95-1491
23.821		Repealed by 95-1491
23.822		Repealed by 95-1491
23.823	Bill No. 84-263 § 1(47)—(50), 5/15/84; Bill No. 84-269 § 1(27), 5/15/84; Bill No. 85-710 § 1, 3/19/85; Bill No. 87-1668 § 1, 5/17/87	Repealed by 95-1491
A23.00—A23.63		See entries following § 24.68
24.00		Repealed by 96-555
24.01		Repealed by 96-555
24.02		Repealed by 96-555
24.10		Repealed by 96-555
24.11		Repealed by 96-555
24.12		Repealed by 96-555
24.121		Repealed by 96-555
24.122		Repealed by 96-555
24.123		Repealed by 96-555
24.13	Bill No. 75-1253 § 1, 6/3/75; Bill No. 76-223 § 1, 7/20/76; Bill No. 83-29 § 1(7), (8), 12/20/83; Bill No. 84-263 § 1(51)—(54), 5/15/84; Bill No. 84-269 § 1(27), 5/15/84; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
24.20		Repealed by 96-555
24.21		Repealed by 96-555
24.22		Repealed by 96-555

Prior Code §	Ordinance History	Herein
24.23	Bill No. 77-477 § 1, 5/17/77; Bill No. 78-1175§ 1, 2/20/79; Bill No. 78-1176 § 1, 2/20/79; Bill No. 78-1177 § 1, 2/20/79; Bill No. 78-1178 § 1, 2/20/79; Bill No. 84-263 § 1(55)—(57), 5/15/84; Bill No. 84-269 § 1(27), 5/15/84; Bill No. 85-934 §§ 1.17, 1.18, 9/17/85; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
24.30		Repealed by 96-555
24.31		Repealed by 96-555
24.32		Repealed by 96-555
24.33		Repealed by 96-555
24.34		Repealed by 96-555
24.40		Repealed by 96-555
24.41		Repealed by 96-555
24.42		Repealed by 96-555
24.50		Repealed by 96-555
24.51		Repealed by 96-555
24.52		Repealed by 96-555
24.53		Repealed by 96-555
24.54		Repealed by 96-555
24.55		Repealed by 96-555
24.56	Bill No. 75-1253 § 1, 6/3/75; Bill No. 78-1177 § 1, 2/20/79; Bill No. 84-263 § 1(58), (59), 5/15/84; Bill No. 84-269 § 1(27), 5/15/84; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
24.60		Repealed by 96-555
24.61		Repealed by 96-555
24.62		Repealed by 96-555
24.63		Repealed by 96-555
24.64		Repealed by 96-555
24.65		Repealed by 96-555
24.66		Repealed by 96-555
24.67		Repealed by 96-555
24.68	Bill No. 77-477 § 1, 5/17/77; Bill No. 78-1175§ 1, 2/20/79; Bill No. 78-1176 § 1, 2/20/79; Bill No. 78-1177 § 1, 2/20/79; Bill No. 78-1178 § 1, 2/20/79; Bill No. 84-263 § 1(60), 5/15/84; Bill No. 84-269§ 1(28), 5/15/74; Bill No. 86-1488 § 1(4), 11/18/86; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
A21.00	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A21.10		Repealed by 96-555
A21.11		Repealed by 96-555
A21.12	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A21.20	Bill No. 84-178 § 1(2), 3/19/85; Bill No. 87-47 § 1, 11/17/87	Repealed by 96-555
A22.00	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A22.10	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A22.20	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A22.21		Repealed by 96-555
A22.30	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A22.40	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 92-340
A23.00	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A23.10		Repealed by 96-555
A23.11		Repealed by 96-555
A23.12		Repealed by 96-555
A23.13		Repealed by 96-555
A23.14	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A23.20		Repealed by 96-555
A23.21		Repealed by 96-555
A23.22	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555

Prior Code §	Ordinance History	Herein
A23.30	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A23.40	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A23.50		Repealed by 96-555
A23.51		Repealed by 96-555
A23.52		Repealed by 96-555
A23.53		Repealed by 96-555
A23.531		Repealed by 96-555
A23.532		Repealed by 96-555
A23.533		Repealed by 96-555
A23.534		Repealed by 96-555
A23.54		Repealed by 96-555
A23.55		Repealed by 96-555
A23.551		Repealed by 96-555
A23.56		Repealed by 96-555
A23.561		Repealed by 96-555
A23.562		Repealed by 96-555
A23.57		Repealed by 96-555
A23.571		Repealed by 96-555
A23.572		Repealed by 96-555
A23.573		Repealed by 96-555
A23.574		Repealed by 96-555
A23.58	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A23.60		Repealed by 96-555
A23.61		Repealed by 96-555
A23.611		Repealed by 96-555
A23.62		Repealed by 96-555
A23.63	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A24.00		Repealed by 96-555
A24.01		Repealed by 96-555
A24.02	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A24.10		Repealed by 96-555
A24.11		Repealed by 96-555
A24.12		Repealed by 96-555
A24.13	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A24.20		Repealed by 96-555
A24.21		Repealed by 96-555
A24.22	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A24.30	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A24.40	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
A24.50	Bill No. 84-178 § 1(2), 3/19/85	Repealed by 96-555
31.00		Repealed by 96-555
31.10		Repealed by 96-555
31.11		Repealed by 96-555
31.12		Repealed by 96-555
31.13		Repealed by 96-555
31.14		Repealed by 96-555
31.15		Repealed by 96-555
31.16		Repealed by 96-555
31.17		Repealed by 96-555
31.18		Repealed by 96-555
31.19		Repealed by 96-555
31.20	Bill No. 76-223 § 1, 7/20/76; Bill No. 83-1218 § 1.2, 5/17/83	Repealed by 96-555
32.00		Repealed by 96-555

Prior Code §	Ordinance History	Herein
32.10	Bill No. 75-1253 § 1, 6/3/75; Bill No. 77-477 § 1, 5/17/77; Bill No. 77-649 § 3, 9/20/77; Bill No. 78-1178 § 1, 2/20/79; Bill No. 79-104 § 1(2), 3/18/80; Bill No. 80-206§ 1(2), 6/5/80; Bill No. 81-785 § 1(4), 3/16/82; Bill No. 83-1218 § 1.3, 5/17/83; Bill No. 84-181 § 1, 3/20/84; Bill No. 84-265 § I, 5/15/84; Bill No. 84-267 § 1(1), 5/15/84; Bill No. 85-934 §§ 1.19, 1.20, 9/17/85; Bill No. 86-1174 § 1, 3/18/86; Bill No. 86-1488 § 1(5), 11/18/86; Bill No. 87-1758 § 1, 5/19/87; Bill No. 87-1760 § 1(3), 5/19/87	Repealed by 96-555
32.20	Bill No. 75-1253 § 1, 6/3/75; Bill No. 77-477 § 1, 5/17/77; Bill No. 78-1175 § 1, 2/20/79; Bill No. 78-1176§ 1, 2/20/79; Bill No. 78-1177 § 1, 2/20/79; Bill No. 78-1178 § 1, 2/20/79; Bill No. 81-785 § 1(5), 3/16/82; Bill No. 83-1218 § 1.4, 5/17/83; Bill No. 84-267 § 1(2), 5/15/84; Bill No. 85-934 §§ 1.21—1.23, 9/17/85	Repealed by 96-555
32.30		Repealed by 96-555
32.31		Repealed by 96-555
32.311		Repealed by 96-555
23.312		Repealed by 96-555
23.313		Repealed by 96-555
23.32		Repealed by 96-555
32.321		Repealed by 96-555
32.322		Repealed by 96-555
32.323		Repealed by 96-555
32.33		Repealed by 96-555
32.34		Repealed by 96-555
32.35		Repealed by 96-555
32.36		Repealed by 96-555
32.37		Repealed by 96-555
32.38		Repealed by 96-555
32.39	Bill No. 83-1143 § 1.3, 3/15/83; Bill No. 86-1184§§ 3, 4, 5/20/86	Repealed by 92-430
32.40		Repealed by 92-430
32.41		Repealed by 92-430
32.42	Bill No. 78-1029 § 1, 11/21/78; Bill No. 80-207§ 1(1), 8/5/80	Repealed by 92-430
32.50		Repealed by 92-430
32.51		Repealed by 92-430
32.52		Repealed by 92-430
32.53		Repealed by 92-430
32.54		Repealed by 92-430
32.55		Repealed by 92-430
32.56	Bill No. 83-1218 §§ 1.5—1.8, 5/17/83	Repealed by 92-430
32.60		Repealed by 92-430
32.61		Repealed by 92-430
32.62	Bill No. 83-1218 §§ 1.5—1.8, 5/17/83	Repealed by 92-430
32.70		Repealed by 92-430
32.71		Repealed by 92-430
32.72		Repealed by 92-430
32.73		Repealed by 92-430
32.74		Repealed by 92-430
32.75	Bill No. 80-207 § 1(2), 8/5/80; Bill No. 81-620 §1, 7/21/81; Bill No. 84-247 § 1(3), 5/15/84; Bill No. 86-1488 § 1(6), 11/18/86	Repealed by 92-430
32.80		Repealed by 92-430
32.81		Repealed by 92-430
32.82		Repealed by 92-430
32.83		Repealed by 92-430
32.84	Bill No. 83-1218 §§ 1.11—1.13, 5/17/83; Bill No. 84-247 § 1(3), 5/15/84	Repealed by 92-430

Prior Code §	Ordinance History	Herein
32.90		Repealed by 92-430
32.91		Repealed by 92-430
32.92		Repealed by 92-430
32.93		Repealed by 92-430
32.931		Repealed by 92-430
32.932		Repealed by 92-430
32.933	Bill No. 83-1218 §§ 1.14—1.16, 5/17/83; Bill No. 84-247 § 1(4), 5/15/84	Repealed by 92-430
33.00		Repealed by 96-555
33.01		Repealed by 96-555
33.10		Repealed by 96-555
33.11		Repealed by 96-555
33.111		Repealed by 96-555
33.112		Repealed by 96-555
33.12		Repealed by 96-555
33.13		Repealed by 96-555
33.14	Bill No. 79-100 § 1(2), 5/10/80; Bill No. 83-1218§§ 1.17, 1.18, 5/17/83; Bill No. 85-934 § 1.24, 9/17/85; Bill No. 87-1663 § 1.1, 3/17/87	Repealed by 96-555
33.20		Repealed by 96-555
33.21		Repealed by 96-555
33.22		Repealed by 96-555
33.23		Repealed by 96-555
33.231		Repealed by 96-555
33.232		Repealed by 96-555
33.233		Repealed by 96-555
33.24		Repealed by 96-555
33.241		Repealed by 96-555
33.25		Repealed by 96-555
33.251		Repealed by 96-555
33.26		Repealed by 96-555
33.27		Repealed by 96-555
33.28		Repealed by 96-555
33.281		Repealed by 96-555
33.29	Bill No. 74-1159 § 1, 3/18/75; Bill No. 75-1253 § 1, 6/3/75; Bill No. 75-46 § 1, 1/20/76; Bill No. 76-223§ 1, 7/20/76; Bill No. 81-544 § 1, 5/19/81; Bill No. 81-794 § 1, 3/16/82; Bill No. 83-1218 §§ 1.19—1.27; Bill No. 85-848 § 1, 7/16/85; Bill No. 87-131 § 1, 2/2/88	Repealed by 96-555
33.30		Repealed by 96-555
33.31		Repealed by 96-555
33.32		Repealed by 96-555
33.33		Repealed by 96-555
33.34		Repealed by 96-555
33.341	Bill No. 74-1159 § 1, 3/18/75; Bill No. 75-1253 § 1, 6/3/75; Bill No. 83-1218 § 1.28, 5/17/83	Repealed by 96-555
33.40		Repealed by 96-555
33.41		Repealed by 96-555
33.42		Repealed by 96-555
33.421		Repealed by 96-555
33.432		Repealed by 96-555
33.423		Repealed by 96-555
33.424	Bill No. 75-1253 § 1, 6/3/75; Bill No. 83-1218 §§ 1.29, 1.30, 5/17/83	Repealed by 96-555
33.50	Bill No. 77-649 § 4, 9/20/77; Bill No. 79-1450 § 1, 7/17/79; Bill No. 84-265 § II, 5/15/84	Repealed by 96-555
34.00		Repealed by 96-555
34.01		Repealed by 96-555

Prior Code §	Ordinance History	Herein
34.10		Repealed by 96-555
34.11		Repealed by 96-555
34.12		Repealed by 96-555
34.121		Repealed by 96-555
34.122		Repealed by 96-555
34.13		Repealed by 96-555
34.14		Repealed by 96-555
34.15		Repealed by 96-555
34.16		Repealed by 96-555
34.17		Repealed by 96-555
34.18		Repealed by 96-555
34.19		Repealed by 96-555
34.191	Bill No. 76-223 § 1, 7/20/76; Bill No. 81-785 § 1(6), 3/16/82; Bill No. 83-1218 §§ 1.31, 1.32, 5/17/83; Bill No. 86-1488 § 1(8), 11/18/86; Bill No. 87-1663 § 1.2, 3/17/87	Repealed by 96-555
35.00		Repealed by 96-555
35.01		Repealed by 96-555
35.02		Repealed by 96-555
35.021		Repealed by 96-555
35.10		Repealed by 96-555
35.11		Repealed by 96-555
35.111		Repealed by 96-555
35.112		Repealed by 96-555
35.113		Repealed by 96-555
35.114		Repealed by 96-555
35.115		Repealed by 96-555
35.116	Bill No. 75-1306 § 1, 8/19/75; Bill No. 76-223 § 1, 7/20/76; Bill No. 77-477 § 1, 5/17/77; Bill No. 78-1175 § 1, 2/20/79; Bill No. 78-1176 § 1, 2/20/79; Bill No. 78-1177 § 1, 2/20/79; Bill No. 78-1178 § 1, 2/20/79; Bill No. 79-104 § 1(3), (4), 3/18/80; Bill No. 80-206 § 1(3), 6/5/80; Bill No. 83-1218 §§ 1.33—1.35, 5/17/83; Bill No. 85-934 §§ 1.25—1.28, 9/17/85; Bill No. 86-1174 § 1, 3/18/86; Bill No. 87-1758 § 1(2), 5/19/87; Bill No. 87-1760 § 1(4), 5/19/87	Repealed by 96-555
35.20		Repealed by 96-555
35.21		Repealed by 96-555
35.22		Repealed by 96-555
35.23		Repealed by 96-555
35.30		Repealed by 96-555
35.31		Repealed by 96-555
35.32	Bill No. 75-1253 § 1, 6/3/75; Bill No. 76-223 § 1, 7/20/76	Repealed by 96-555
35.40		Repealed by 96-555
35.41		Repealed by 96-555
35.42		Repealed by 96-555
35.43		Repealed by 96-555
35.44		Repealed by 96-555
35.45	Bill No. 75-1253 § 1, 6/3/75	Repealed by 96-555
35.50		Repealed by 96-555
35.51		Repealed by 96-555
35.52		Repealed by 96-555
35.521		Repealed by 96-555
35.53		Repealed by 96-555
35.54		Repealed by 96-555
35.55		Repealed by 96-555
35.56		Repealed by 96-555

Prior Code §	Ordinance History	Herein
35.57		Repealed by 96-555
35.58	Bill No. 78-1175 § 1, 2/20/79; Ord. No. 79-104 § 1(5), 3/18/80; Bill No. 83-1218 § 1.36, 5/17/83; Bill No. 85-934 §§ 1.29—1.32, 9/17/85; Bill No. 87-1758 § 1(3), 5/19/87; Bill No. 87-1760 § 1(5), 5/19/87	Repealed by 96-555
41.00		Repealed by 96-555
41.10		Repealed by 96-555
41.11		Repealed by 96-555
41.12		Repealed by 96-555
42.00		Repealed by 96-555
42.10	Bill No. 75-1253 § 1, 6/3/75; Bill No. 79-104 § 1(16), 3/18/80; Bill No. 85-934 § 1.33, 9/17/85; Bill No. 86-1173 § 1, 3/18/86; Bill No. 87-1760 § 1(6), 5/19/87; Bill No. 87-1850 § 1, 7/21/87	Repealed by 96-555
42.20	Bill No. 86-1424 § 1(1), 9/16/86; Bill No. 86-1429 § 1, 9/18/86	Repealed by 96-555
42.30		Repealed by 96-555
42.31		Repealed by 96-555
42.311		Repealed by 96-555
42.312		Repealed by 96-555
42.313		Repealed by 96-555
42.32		Repealed by 96-555
42.321		Repealed by 96-555
42.322		Repealed by 96-555
42.323		Repealed by 96-555
42.33		Repealed by 96-555
42.331		Repealed by 96-555
42.332		Repealed by 96-555
42.333		Repealed by 96-555
42.334		Repealed by 96-555
42.34		Repealed by 96-555
42.341		Repealed by 96-555
42.342		Repealed by 96-555
42.35		Repealed by 96-555
42.351		Repealed by 96-555
42.352		Repealed by 96-555
42.353		Repealed by 96-555
42.36		Repealed by 96-555
42.361		Repealed by 96-555
42.362		Repealed by 96-555
42.363		Repealed by 96-555
42.364		Repealed by 96-555
42.37		Repealed by 96-555
42.371		Repealed by 96-555
42.372		Repealed by 96-555
42.373		Repealed by 96-555
42.38		Repealed by 96-555
42.381		Repealed by 96-555
42.382		Repealed by 96-555
42.39	Bill No. 86-1184 § 5, 5/10/86	Repealed by 96-555
42.40		Repealed by 96-555
42.50		Repealed by 92-430
42.51		Repealed by 92-430
42.52		Repealed by 92-430
42.53		Repealed by 92-430
42.54	Bill No. 84-247 § 1(5), (6), 5/15/84	Repealed by 92-430
42.60	Bill No. 84-247 § 1(7), 5/15/84	Repealed by 92-430

Prior Code §	Ordinance History	Herein
42.70		Repealed by 92-430
42.80		Repealed by 92-430
42.81		Repealed by 96-555
42.82		Repealed by 96-555
42.83		Repealed by 96-555
42.84		Repealed by 96-555
43.00		Repealed by 96-555
43.10		Repealed by 96-555
43.11		Repealed by 96-555
43.20		Repealed by 96-555
43.21		Repealed by 96-555
43.22		Repealed by 96-555
43.23		Repealed by 96-555
43.24		Repealed by 96-555
43.25		Repealed by 96-555
43.26		Repealed by 96-555
43.27	Bill No. 76-222 § 1, 7/20/76; Bill No. 76-223 § 1, 7/20/76; Bill No. 85-934 §§ 1.34, 1.35, 9/17/85	Repealed by 96-555
43.30	Bill No. 75-1253 § 1, 6/3/75	Repealed by 96-555
43.31		Repealed by 96-555
43.40		Repealed by 96-555
43.41		Repealed by 96-555
43.42		Repealed by 96-555
43.43		Repealed by 96-555
43.44		Repealed by 96-555
43.441		Repealed by 96-555
43.45		Repealed by 96-555
43.50		Repealed by 96-555
43.51		Repealed by 96-555
44.00		Repealed by 96-555
44.01		Repealed by 96-555
44.02		Repealed by 96-555
44.10		Repealed by 96-555
44.11		Repealed by 96-555
44.111		Repealed by 96-555
44.112		Repealed by 96-555
44.113		Repealed by 96-555
44.114	Bill No. 79-104 § 1(7), 3/18/80; Bill No. 85-934§ 1.36, 9/17/85; Bill No. 86-1173 § 1, 3/18/86; Bill No. 87-1760 § 1(7), 5/19/87	Repealed by 96-555
44.20		Repealed by 96-555
44.21		Repealed by 96-555
44.22		Repealed by 96-555
44.23		Repealed by 96-555
44.30		Repealed by 96-555
44.40		Repealed by 96-555
44.41		Repealed by 96-555
44.42		Repealed by 96-555
44.43		Repealed by 96-555
44.44		Repealed by 96-555
44.45		Repealed by 96-555
44.46		Repealed by 96-555
44.50		Repealed by 96-555
44.51		Repealed by 96-555
44.52		Repealed by 96-555

Prior Code §	Ordinance History	Herein
44.53		Repealed by 96-555
44.531		Repealed by 96-555
44.54		Repealed by 96-555
44.55		Repealed by 96-555
44.56		Repealed by 96-555
44.57		Repealed by 96-555
44.58		Repealed by 96-555
44.59	Bill No. 79-104 § 1(8), 3/18/80; Bill No. 85-934§ 1.37, 9/17/85; Bill No. 87-1760 § 1(8), 5/19/87	Repealed by 96-555
51.00		Repealed by 96-555
52.00		Repealed by 96-555
52.10		Repealed by 96-555
52.20		Repealed by 96-555
52.30		Repealed by 96-555
52.40		Repealed by 96-555
52.41		Repealed by 96-555
52.42	Bill No. 84-533, § 1(1), 3-19-85; Bill No. 86-1488, § 1(9), 11-18-86	Repealed by 96-555
52.50		Repealed by 96-555
52.51		Repealed by 96-555
52.52		Repealed by 96-555
52.53		Repealed by 96-555
52.54		Repealed by 96-555
52.55		Repealed by 96-555
52.56		Repealed by 96-555
52.57	Bill No. 75-1253 § 1, 6/3/75	Repealed by 96-555
52.60		Repealed by 96-555
52.61		Repealed by 96-555
52.62		Repealed by 96-555
52.63		Repealed by 96-555
52.631		Repealed by 96-555
52.64		Repealed by 96-555
52.65		Repealed by 96-555
52.70		Repealed by 96-555
52.71		Repealed by 96-555
52.72		Repealed by 96-555
52.73		Repealed by 96-555
52.74		Repealed by 96-555
52.75	Bill No. 76-223 § 1, 7/20/76; Bill No. 84-263 § 1(61), 5/15/84; Bill No. 84-269 § 1(29), 5/15/84	Repealed by 96-555
52.80		Repealed by 92-430
52.81		Repealed by 92-430
52.811		Repealed by 92-430
52.812		Repealed by 92-430
52.82		Repealed by 92-430
52.821		Repealed by 92-430
52.822		Repealed by 92-430
52.823		Repealed by 92-430
52.83		Repealed by 92-430
52.84		Repealed by 92-430
52.90		Repealed by 96-555
52.91		Repealed by 96-555
52.92		Repealed by 96-555
52.93		Repealed by 96-555
52.94		Repealed by 96-555

Prior Code §	Ordinance History	Herein
52.100		Repealed by 96-555
53.00		Repealed by 96-555
53.10		Repealed by 96-555
53.20		Repealed by 96-555
53.30		Repealed by 96-555
53.301		Repealed by 96-555
53.31	Bill No. 75-1306 § 1, 8/19/75; Bill No. 85-533§ 1(4), 3/19/85; Bill No. 86-1488 § 1(9), 11/18/86	Repealed by 96-555
53.40		Repealed by 92-430
53.41		Repealed by 92-430
53.42		Repealed by 92-430
53.50		Repealed by 96-555
53.51		Repealed by 96-555
53.52		Repealed by 96-555
53.53		Repealed by 92-430
61.00		Repealed by 96-555
61.01		Repealed by 96-555
61.10		Repealed by 96-555
61.11		Repealed by 96-555
61.12		Repealed by 96-555
61.121		Repealed by 96-555
61.122		Repealed by 96-555
61.123		Repealed by 96-555
61.124		Repealed by 96-555
61.125		Repealed by 96-555
61.20		Repealed by 96-555
61.21		Repealed by 96-555
61.211		Repealed by 96-555
61.212		Repealed by 96-555
61.213		Repealed by 96-555
61.214		Repealed by 96-555
61.215		Repealed by 96-555
61.22		Repealed by 96-555
61.23		Repealed by 96-555
61.30		Repealed by 96-555
61.40		Repealed by 96-555
61.50		Repealed by 96-555
61.60		Repealed by 96-555
71.00	Bill No. 78-843 § 1, 10/3/78	Repealed by 96-555
71.10	Bill No. 78-843 § 1, 10/3/78; Bill No. 83-1218 § 1.38, 5/17/83; Bill No. 84-263 § 1(62), 5/15/84; Bill No. 84-269 § 1(30), 5/15/84	Repealed by 96-555
71.20	Bill No. 78-843 § 1, 10/3/78	Repealed by 96-555
71.30	Bill No. 78-843 § 1, 10/3/78	Repealed by 96-555
71.40	Bill No. 78-843 § 1, 10/3/78	Repealed by 96-555
72.00A		Repealed by 96-555
72.10A		Repealed by 96-555
72.20A		Repealed by 96-555
72.30A		Repealed by 96-555
72.40A		Repealed by 96-555
72.50A		Repealed by 96-555
72.60A		Repealed by 96-555
72.61A		Repealed by 96-555
72.62A		Repealed by 96-555
72.63A		Repealed by 96-555

Prior Code §	Ordinance History	Herein
72.70A		Repealed by 96-555
72.71A		Repealed by 96-555
72.80A		Repealed by 96-555
72.90A		Repealed by 96-555
72.91A		Repealed by 92-430
72.92A		Repealed by 96-555
81.00	Bill No. 86-1488 § 1(11), 11/18/86	Repealed by 96-555
81.10		Repealed by 96-555
81.20		Repealed by 96-555
81.21		Repealed by 96-555
81.22		Repealed by 96-555
81.221		Repealed by 96-555
81.23		Repealed by 96-555
81.24	Bill No. 75-1253 § 1, 6/3/75	Repealed by 96-555
81.30		Repealed by 96-555
81.31		Repealed by 96-555
81.311	Bill No. 77-578 § 1, 7/19/77	Repealed by 96-555
81.312		Repealed by 96-555
81.313	Bill No. 77-578 § 1, 7/19/77	Repealed by 96-555
81.314	Bill No. 77-578 § 1, 7/19/77	Repealed by 96-555
81.32		Repealed by 96-555
81.33		Repealed by 96-555
81.40		Repealed by 96-555
81.50		Repealed by 96-555
81.51		Repealed by 96-555
81.52		Repealed by 96-555
81.60		Repealed by 96-555
81.70		Repealed by 96-555
82.00		Repealed by 96-555
82.10	Bill No. 84-263 § 1(63), 5/15/84; Bill No. 84-269§ 1(31), 5/15/84; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
82.20		Repealed by 96-555
82.21		Repealed by 96-555
82.22		Repealed by 96-555
82.23		Repealed by 96-555
82.24		Repealed by 96-555
82.25		Repealed by 96-555
82.26		Repealed by 96-555
82.27	Bill No. 83-1148 § 1, 3/15/83; Bill No. 84-263§ 1(64)—(70), 5/15/84; Bill No. 84-269 § 1(32)—(36), 5/15/84; Bill No. 85-934 §§ 1.38, 1.39, 9/17/85; Bill No. 87-1668 § 1, 5/17/87; Bill No. 87-1759 § 1, 5/19/87	Repealed by 96-555
82.30		Repealed by 96-555
82.31		Repealed by 96-555
82.32		Repealed by 96-555
82.33		Repealed by 96-555
82.34	Bill No. 75-1253 § 1, 6/3/75; Bill No. 83-94 § 1, 1/17/84; Bill No. 84-263 § 1(71), (72), 5/15/84; Bill No. 84-269§ 1(37), 5/15/84; Bill No. 85-847 § 1, 7/16/85; Bill No. 85-934 §§ 1.40, 1.41, 9/17/85; Bill No. 86-1240 § 1, 5/10/86; Bill No. 86-1256 §§ 1.1—3, 5/20/86; Bill No. 86-1602 § 1, 1/20/87; Bill No. 87-1668 § 1, 5/17/87	Repealed by 96-555
82.40	Bill No. 75-1258 § 1, 6/3/75	Repealed by 96-555
82.50		Repealed by 92-430
82.60		Repealed by 96-555
82.61		Repealed by 96-555

Prior Code §	Ordinance History	Herein
82.62		Repealed by 96-555
82.63		Repealed by 96-555
82.64		Repealed by 96-555
82.70		Repealed by 96-555
82.80		Repealed by 96-555
82.81		Repealed by 96-555
82.82		Repealed by 96-555
82.821		Repealed by 96-555
82.83		Repealed by 96-555
82.831		Repealed by 96-555
82.832		Repealed by 96-555
82.84		Repealed by 96-555
82.85		Repealed by 96-555
82.86	Bill No. 75-1253 § 1, 6/3/75; Bill No. 84-263§ 1(73)—(76), 5/15/84	Repealed by 96-555
82.90		Repealed by 96-555
82.91		Repealed by 96-555
82.92		Repealed by 96-555
82.93		Repealed by 96-555
82.931		Repealed by 96-555
82.932		Repealed by 96-555
82.933		Repealed by 96-555
82.934		Repealed by 96-555
82.94		Repealed by 96-555
82.95		Repealed by 96-555
82.951		Repealed by 96-555
82.96		Repealed by 96-555
82.961		Repealed by 96-555
82.962		Repealed by 96-555
82.963		Repealed by 96-555
82.964		Repealed by 96-555
82.965		Repealed by 96-555
82.966	Bill No. 81-474 § 1, 3/17/81; Bill No. 84-263§ 1(63)—(79), 5/15/84; Bill No. 84-268 § 1, 5/15/84; Bill No. 84-269 § 1 (31)—(40), 5/15/84	Repealed by 96-555
83.00	Bill No. 84-178 § 1(3), 3/19/85	Repealed by 96-555
83.10		Repealed by 96-555
83.11		Repealed by 96-555
83.12		Repealed by 96-555
83.13		Repealed by 96-555
83.20		Repealed by 96-555
83.21		Repealed by 96-555
83.22	Bill No. 75-1253 § 1, 6/3/75	Repealed by 96-555
83.23		Repealed by 96-555
83.30	Bill No. 75-1317 § 1, 7/10/75; Bill No. 77-679§ 1, 9/20/77; Bill No. 83-81 § 1, 1/17/84; Bill No. 85-934 §§ 1.42, 1.43, 9/17/85; Bill No. 86-1488§ 1(12), 11/18/86; Bill No. 87-1760 § 1(9), 5/19/87	Repealed 7by 96-555
83.40		Repealed by 96-555
83.41		Repealed by 96-555
83.42		Repealed by 96-555
83.43		Repealed by 96-555
83.44	Bill No. 75-1253 § 1, 6/3/75; Bill No. 79-103 §§ 1(1), (2), 3/18/80; Bill No. 84-179 § 1(1), 3/20/84; Bill No. 85-934 §§ 1.44—1.49, 9/17/85	Repealed by 96-555
83.50		Repealed by 96-555
83.51		Repealed by 96-555
83.52	Bill No. 83-1219 § 1.2, 5/17/83	Repealed by 96-555

Prior Code §	Ordinance History	Herein
83.53		Repealed by 96-555
83.60		Repealed by 96-555
83.61		Repealed by 96-555
83.62		Repealed by 96-555
83.63	Bill No. 86-1488 § 1413, 11/18/86	Repealed by 96-555
83.70		Repealed by 92-430
83.71		Repealed by 92-430
83.72		Repealed by 92-430
83.721		Repealed by 92-430
83.722		Repealed by 92-430
83.723		Repealed by 92-430
83.724		Repealed by 92-430
83.73	Bill No. 75-1253 § 1, 6/3/75; Bill No. 76-185 § 1, 7/20/76; Bill No. 76-223 § 1, 7/20/76; Bill No. 77-443 § 1, 4/5/77; Bill No. 78-814 § 1, 3/21/78; Bill No. 78-1029 § 1, 11/21/78	Repealed by 92-430
83.80		Repealed by 96-555
83.81		Repealed by 96-555
83.82		Repealed by 96-555
83.83		Repealed by 96-555
83.84	Bill No. 77-679 § 1, 9/20/77; Bill No. 87-1667§ 1, 5/17/87; Bill No. 87-1760 § 1(10), 5/19/87	Repealed by 96-555
84.00	Bill No. 84-178 § 1(4), 3/19/85	Repealed by 96-555
84.10		Repealed by 96-555
84.20		Repealed by 96-555
84.30		Repealed by 96-555
84.31		Repealed by 96-555
84.32		Repealed by 96-555
84.33		Repealed by 96-555
84.34		Repealed by 96-555
84.341		Repealed by 96-555
84.342	Bill No. 75-1253 §1, 6/3/75	Repealed by 96-555
84.343		Repealed by 96-555
84.344		Repealed by 96-555
84.40		Repealed by 96-555
84.41		Repealed by 96-555
84.42		Repealed by 96-555
84.50		Repealed by 96-555
84.51		Repealed by 96-555
84.52		Repealed by 96-555
84.60		Repealed by 92-430
84.61		Repealed by 92-430
84.62		Repealed by 92-430
84.63		Repealed by 92-430
84.64	Bill No. 76-223 § 1, 7/20/76	Repealed by 92-430
84.70		Repealed by 96-555
84.71		Repealed by 96-555
84.711		Repealed by 96-555
84.712		Repealed by 96-555
84.713		Repealed by 96-555
84.72		Repealed by 96-555
84.721		Repealed by 96-555
84.722		Repealed by 96-555
84.723		Repealed by 96-555

Prior Code §	Ordinance History	Herein
84.73		Repealed by 96-555
84.731		Repealed by 96-555
84.732		Repealed by 96-555
84.733		Repealed by 96-555
84.734		Repealed by 96-555
84.74		Repealed by 96-555
84.741		Repealed by 96-555
84.742	Bill No. 76-223 § 1, 7/20/76	Repealed by 96-555
84.75		Repealed by 96-555
84.751		Repealed by 96-555
84.752		Repealed by 96-555
84.753		Repealed by 96-555
84.76		Repealed by 96-555
84.77		Repealed by 96-555
84.78		Repealed by 96-555
84.79		Repealed by 96-555
84.80		Repealed by 96-555
84.81		Repealed by 96-555
84.82		Repealed by 96-555
85.00		Repealed by 96-555
85.10		Repealed by 96-555
85.11		Repealed by 96-555
85.12		Repealed by 96-555
85.20		Repealed by 96-555
85.21		Repealed by 96-555
85.22		Repealed by 96-555
85.23		Repealed by 96-555
85.24		Repealed by 96-555
85.25		Repealed by 96-555
85.251		Repealed by 96-555
85.252		Repealed by 96-555
85.253		Repealed by 96-555
85.26		Repealed by 96-555
85.27		Repealed by 96-555
85.271		Repealed by 96-555
85.272		Repealed by 96-555
85.273		Repealed by 96-555
85.274		Repealed by 96-555
85.275		Repealed by 96-555
85.276		Repealed by 96-555
85.277		Repealed by 96-555
85.278	Bill No. 75-1253 § 1, 6/3/75; Bill No. 76-223 § 1, 7/20/76; Bill No. 78-1029 § 1, 11/21/78; Bill No. 84-179 § 1(2), 3/20/84; Bill No. 84-266 § II, 5/15/84; Bill No. 86-1601 § 1.1, 3/17/87; Bill No. 88-280 §1(1), 5/17/88	Repealed by 92-430
85.30		Repealed by 96-555
85.31		Repealed by 96-555
85.32		Repealed by 96-555
85.33	Bill No. 86-1601 § 1.2, 3/17/87	Repealed by 96-555
85.34		Repealed by 96-555
85.40	Bill No. 77-578 § 1, 7/19/77	Repealed by 96-555
85.50	Bill No. 88-280 § 1(2), 5/17/88	Repealed by 96-555
91.00	Bill No. 83-133 § 1, 3/20/84	Repealed by 96-555
91.05	Bill No. 84-585 § 2, 1/15/85	Repealed by 96-555
91.11	Bill No. 83-133 § 2, 3/20/84; Bill No. 84-585 § 1, 1/15/85	Repealed by 96-555

Prior Code §	Ordinance History	Herein
91.12		Repealed by 96-555
91.20		Repealed by 96-555
91.21	Bill No. 87-59 § 1(1), (2), (7), 11/17/87	Repealed by 96-555
91.30		Repealed by 96-555
91.31		Repealed by 96-555
91.32		Repealed by 96-555
91.33	Bill No. 87-59 § 1(3), (4), (8), 11/17/87	Repealed by 96-555
91.40		Repealed by 96-555
91.41	Bill No. 85-934 § 1.50, 9/17/85; Bill No. 87-59 § 1(5), (6), 11/17/87	Repealed by 96-555
91.50		Repealed by 96-555
91.51		Repealed by 96-555
91.511		Repealed by 96-555
91.512	Bill No. 83-133 §§ 3, 4, 3/20/84; Bill No. 84-585 §§ 3, 4, 1/15/85; Bill No. 86-1488 § 1(14), 11/18/86	Repealed by 96-555
91.60		Repealed by 96-555
91.61		Repealed by 92-283
91.62		Repealed by 96-555
91.63		Repealed by 96-555
91.64		Repealed by 96-555
91.65	Bill No. 83-133 §§ 5, 6, 3/20/84; Bill No. 84-585 §§ 5, 6, 1/15/85; Bill No. 85-934 § 1.51, 9/17/85	Repealed by 96-555
91.66		Repealed by 96-555
91.70		Repealed by 96-555
91.71		Repealed by 96-555
101.00	Bill No. 85-934 § 1.52, 9/17/85	Repealed by 96-555
101.10		Repealed by 96-555
101.20		Repealed by 96-555
101.21		Repealed by 96-555
101.22		Repealed by 96-555
101.23		Repealed by 96-555
101.24		Repealed by 96-555
101.25		Repealed by 96-555
101.251		Repealed by 96-555
101.252		Repealed by 96-555
101.253		Repealed by 96-555
101.26		Repealed by 96-555
101.27	Bill No. 73-223 § 1, 7/20/76; Bill No. 76-233 § 1, 7/20/76; Bill No. 77-705 § 1, 11/15/77; Bill No. 77-712 § 2, 11/15/77; Bill No. 78-1174 § 1, 1/16/79; Bill No. 79-1272 § 1, 5/15/79; Bill No. 79-1449 § 1, 7/17/79; Bill No. 84-266 § III, 5/15/84; Bill No. 85-721 § 1, 5/21/85; Bill No. 86-1437 § 1, 12/9/86; Bill No. 86-1486 § 1, 12/16/87	Repealed by 96-555
101.271		Repealed by 96-555
101.30		Repealed by 96-555
101.31		Repealed
101.32	Bill No. 86-1364 §§ 1, 2, 11/18/86	Repealed by 96-555
101.40		Repealed by 96-555
101.41		Repealed by 96-555
101.42		Repealed by 96-555
101.43		Repealed by 96-555
101.44		Repealed by 96-555
101.45		Repealed by 96-555
101.46	Bill No. 83-1187 §§ 1.1, 1.2, 5.17/83; Bill No. 84-263§ 1(80), 5/15/84; Bill No. 84-269 § 1(41), 5/15/84	Repealed by 96-555
102.00	Bill No. 86-1321 § 1(2), 7/15/86	Repealed by 96-555

Prior Code §	Ordinance History	Herein
102.10		Repealed by 96-555
102.11		Repealed by 96-555
102.12	Bill No. 80-278 § 1, 7/15/80; Bill No. 81-560 § 1, 6/2/81; Bill No. 84-266 § III, 5/15/84; Bill No. 86-1487§ 1, 12/16/86	Repealed by 96-555
102.13		Repealed by 96-555
102.20		Repealed by 96-555
102.21		Repealed by 96-555
102.22		Repealed by 96-555
102.30		Repealed by 96-555
102.31		Repealed by 96-555
102.311		Repealed by 96-555
102.32		Repealed by 96-555
102.321		Repealed by 96-555
102.33	Bill No. 75-1253 § 1, 6/3/75; Bill No. 77-649 § 5, 9/20/77; Bill No. 80-207 § 1(3), 8/5/80; Bill No. 84-266§ I, 5/15/84; Bill No. 86-1321 § 1, 7/15/86; Bill No. 87-1666 § 1, 3/17/87; Bill No. 87-1681 § 1, 5/19/87; Bill No. 88-232 § 1(2), 5/17/88	Repealed by 96-555
103.00		Repealed by 96-555
103.10	Bill No. 84-266 § V, 5/15/84	Repealed by 96-555
103.20		Repealed by 96-555
103.21		Repealed by 96-555
103.30		Repealed by 96-555
103.311	Bill No. 87-44 § 1, 11/17/87	Repealed by 94-936
103.312		Repealed by 96-555
103.313		Repealed by 96-555
103.314		Repealed by 96-555
103.315		Repealed by 96-555
103.316		Repealed by 96-555
103.317		Repealed by 96-555
103.318		Repealed by 92-256
103.319		Repealed by 96-555
103.320		Repealed by 96-555
103.321		Repealed by 96-555
103.322		Repealed by 96-555
103.323	Bill No. 75-1253 § 1, 6/3/75; Bill No. 77-477 § 1, 5/17/77; Bill No. 77-658 § 1, 4/18/78; Bill No. 78-1175 § 1, 2/20/79; Bill No. 78-1176 § 1, 2/20/79; Bill No. 79-79 §§ 1(1), (2), 3/18/80; Bill No. 81-455§ 1(3), 3/17/81; Bill No. 81-671 § 1, 9/15/81; Bill No. 81-785 § 1(7), 3.16/82; Bill No. 83-1218 §§ 1.39—1.41, 5/17/83; Bill No. 83-1302 § 1, 7/19/83; Bill No. 84-182 § 1, 3/20/84; Bill No. 84-263 § 1(81), 5/15/84; Bill No. 84-267 § 1(3), 5/15/84; Bill No. 84-269 § 1(42), 5/15/84; Bill No. 85-934 §§ 1.53—1.55, 9/17/85; Bill No. 86-1488 § 1(15), 11/18/86; Bill No. 87-44 § 1, 11/17/87; Bill No. 88-268 § 1, 5/17/88	Repealed by 96-555
103.324		Repealed by 96-555
103.325		Repealed by 96-555
103.325		Repealed by 96-555
103.40		Repealed by 96-555
103.41		Repealed by 89-991
103.411		Repealed by 89-991
103.42		Repealed by 96-555
103.43		Repealed by 96-555
103.431		Repealed by 96-555
103.440		Repealed by 96-555
103.450		Repealed by 96-555

Prior Code §	Ordinance History	Herein
103.460	Bill No. 84-178 § 1(5), (6), 3/19/85; Bill No. 88-232§ 1(3), 5/17/88	Repealed by 96-555
103.50		Repealed by 96-555
103.51		Repealed by 96-555
103.511		Repealed by 96-555
103.52		Repealed by 96-555
103.521	Bill No. 74-1184 § 1, 3/18/75; Bill No. 75-1253§ 1, 6/3/75; Bill No. 84-263 § 1(82), 5/15/84; Bill No. 84-269 § 1(43), 5/15/84; Bill No. 84-178 § 1(7), 3/19/85	Repealed by 96-555
103.60		Repealed by 96-555
103.61		Repealed by 96-555
103.62	Bill No. 75-1253 § 1, 6/3/75; Bill No. 76-233 § 1, 7/20/76; Bill No. 78-843 § 1, 10/3/78	Repealed by 96-555
103.70		Repealed by 96-555
103.71		Repealed by 96-555
103.72	Bill No. 85-934 § 1.56, 9/17/85; Bill No. 86-1424§ 1(2), 9/16/86; Bill No. 88-237 § 1, 5/17/88	Repealed by 96-555
103.80		Repealed by 96-555
103.81	Bill No. 76-223 § 1, 7/20/76; Bill No. 84-178 § 1(8), 3/19/85; Bill No. 85-934 § 1.56, 9/17/85	Repealed by 96-555
103.90	Bill No. 84-533 § 1(5), 3/19/85	Repealed by 96-555
103.100		Reserved
104.00		Repealed by 96-555
104.10		Repealed by 96-555
104.11		Repealed by 96-555
104.111		Repealed by 96-555
104.112		Repealed by 96-555
104.12		Repealed by 96-555
104.13	Bill No. 75-1253 § 1, 6/3/75; Bill No. 79-1272§ 1, 5/15/79; Bill No. 84-178 § 1(9), 3/19/85	Repealed by 96-555
'104.20		Repealed by 96-555
104.21		Repealed by 96-555
104.30	Bill No. 75-1253 § 1, 6/3/75	Repealed by 96-555
104.40	Bill No. 75-1253 § 1, 6/3/75	Repealed by 96-555
104.50		Repealed by 96-555
104.51		Repealed by 96-555
104.52		Repealed by 96-555
104.53		Repealed by 96-555
104.54		Repealed by 96-555
104.55	Bill No. 81-582 § 1, 12/8/81	Repealed by 96-555
104.60		Repealed by 96-555
104.61		Repealed by 96-555
104.610		Repealed by 96-555
104.611		Repealed by 96-555
104.612		Repealed by 96-555
104.613		Repealed by 96-555
104.62		Repealed by 96-555
104.620		Repealed by 96-555
104.621		Repealed by 96-555
104.622		Repealed by 96-555
104.623	Bill No. 84-532 § 1(2)—(4), 12-18-84; Bill No. 86-1206 § 1, 5/20/86	Repealed by 96-555
104.70	Bill No. 75-1253 § 1, 6/3/75; Bill No. 84-532 § 1(1), 12/18/80	Repealed by 96-555
105.00		Repealed by 96-555
105.10		Repealed by 96-555
105.20		Reserved

Prior Code §	Ordinance History	Herein
106.00		Repealed by 96-555
106.10		Repealed by 96-555
107.00		Repealed by 95-1362
107.10		Repealed by 96-555

ORDINANCE LIST AND DISPOSITION TABLE

Ordinance Number	Disposition
77-739	Creates department of fire and sets out positions for department members (Repealed by 94-1117)
Amdt. 1	Adds language to § 3 of Ord. 77-739, fire department positions (Repealed by 94-1117)
Amdt. 2	Deletes wording from § 3 of Ord. 77-739, fire department positions (Repealed by 94-1117)
Amdt. 3	Deletes wording from § 3 of Ord. 77-739, fire department positions (Repealed by 94-1117)
86-1534	Resolution requirements for appropriation of funds from general fund reserve fund (4% fund) (5.04)
Amdt. 1	Adds language to Ord. 86-1534, appropriations from general fund reserve fund (Special)
Amdt. 2	Adds language to Ord. 86-1534, appropriations from general fund reserve fund (Special)
Amdt. 3	Adds language to Ord. 86-1534, appropriations from general fund reserve fund (Special)
87-39	Amends official zoning map (Special)
87-101	Amends official zoning map (Special)
87-204	Amends official zoning map (Special)
87-1890	Authority to grant permits and privileges for aerial cables or canopies over public ways (13.16)
88-215	Amends official zoning map (Special)
88-240	Grants authority to 1st Cablevision, Inc., cable television service (Special)
88-248	Acquisition of certain property (Special)
88-289	Adds language to prior code § 24-1-116 and adds § 24.1.128(e), wheel tax and motor vehicle regulatory license issuance restrictions (5.32)
88-364	Amends official zoning map (Special)
88-381	Adds language to § 23.27, adds § 103.324 and amends §§ 22.10 and 22.20 of prior code Appx. A, zoning (Repealed by 96-555)
Amdt. 1	Adds (e) to § 1 of Ord. 88-381, zoning (Repealed by 96-555)
88-364	Amends official zoning map (Special)
88-387	Amends official zoning map (Special)
88-394	Amends official zoning map (Special)
88-403	Adds §§ 91.05(C), 91.12, 91.66 to prior code, historic landmarks and districts; adds after the phrase "Historic Preservation District" the phrase "or Historic Preservation Landmark"; amends name of Art. IX, caption of §§ 91.00, 91.05, 91.10, § 91.00(b), first sentence of § 91.05, §§ 91.50(a), 91.50(b), 91.61, 91.71, first sentence of § 91.51, § 91.51(a), (b) and (c), first sentence of 91.51(e) and amends § 9.64; designates text following § 91.10 as § 91.11, historic district designation, zoning of historic landmarks and districts (Repealed by 96-555)
88-440	(Repealed by 89-986)
88-504	Amends § 103.52(a) of prior code Appx. A, zoning (Repealed by 96-555)
Amdt. 1	Amends caption and § 1 of Ord. 88-504, zoning (Repealed by 96-555)
88-508	Amends prior code § 29-1-54, noise control (11.12)
88-514	Amends prior code § 32-1-1 and repeals and replaces portion of § 32-1-54, metropolitan employee benefit program (3.08)
88-519	Repeals and replaces (a) and (b) of § 13.21 of prior code Appx. 1, zoning (Repealed by 96-555)
Amdt. 1	Adds (b)(9) to § 1 of Ord. 88-519, zoning (Repealed by 96-555)
88-526	Adds §§ 10.57.010—10.57.080 (10.57)
88-531	Amends official zoning map (Special)
Amdt. 1	Deletes and substitutes plan in Ord. 88-531 (Special)
88-533	Amends official zoning map (Special)
88-535	Amends official zoning map (Special)
88-536	Amends official zoning map (Special)
88-537	Amends official zoning map (Special)
88-540	Amends official zoning map (Special)
88-545	Amends official zoning map (Special)
Amdt. 1	Amends Ord. 88-545 by deleting and replacing the plan attached to the ordinance (Special)
Amdt. 2	Amends Ord. 88-545 concerning Bell Forge Parkway (Special)
88-550	Amends official zoning map (Special)
88-555	Extends Urban Services District boundaries (Charter Appx. 1)
88-570	Amends official zoning map (Special)

Ordinance Number	Disposition
88-571	Amends official zoning map (Special)
88-572	Amends official zoning map (Special)
88-573	Amends official zoning map (Special)
88-578	Amends official zoning map (Special)
88-582	Amends official zoning map (Special)
88-583	Amends official zoning map (Special)
88-584	Amends official zoning map (Special)
88-588	Amends official zoning map (Special)
88-590	Names certain private road (Special)
88-591	Alley vacation (Special)
88-592	Amends official zoning map (Special)
88-593	Amends official zoning map (Special)
88-594	Amends official zoning map (Special)
88-595	Amends official zoning map (Special)
88-596	Amends official zoning map (Special)
88-597	Amends official zoning map (Special)
88-598	Amends official zoning map (Special)
88-599	Amends official zoning map (Special)
88-600	Amends official zoning map (Special)
88-601	(Withdrawn)
88-602	(Withdrawn)
88-603	(Withdrawn)
88-604	Amends official zoning map (Special)
88-605	(Deferred)
88-606	Amends §§ 33.14, 82.34 and 103.313 of prior code Appx. A, zoning (Repealed by 96-555)
88-607	(Withdrawn)
88-608	Repeals and replaces prior code § 2-1-11, metropolitan attorney (2.40)
88-609	Emergency communications district created (2.156)
Amdt. 1	Amends § 3 of Ord. 88-609, emergency communications district (2.156)
88-610	Names fire station (Special)
88-611	Names fire station (Special)
88-612	Names fire station (Special)
88-613	Amends prior code § 40-1-115, water and sewer bill paying stations (15.48)
Amdt. 1	Repeals and replaces § 1 of Ord. 88-613, water and sewer bill paying stations (15.48)
88-614	Authorizes easement conveyance (Special)
88-615	Abandons easement rights (Special)
88-616	(Withdrawn)
88-617	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. 88-617 (Special)
88-618	Amends official zoning map (Special)
88-619	Amends official zoning map (Special)
88-620	Amends §§ 13.51 and 103.312 of prior code Appx. A, zoning (Repealed by 96-555)
88-621	Amends § 32.20 of prior code Appx. A, zoning (Repealed by 96-555)
88-622	Acquisition of property for utility easements (Special)
88-623	Repeals and replaces § 2 of Ord. 83-1129, nullification office (12.32)
88-624	Authorizes agreement with Task Force on Efficiency in Metropolitan Government (Special)
88-625	Street vacation (Special)
88-626	Amends official zoning map (Special)
88-627	Amends official zoning map (Special)
88-628	Amends official zoning map (Special)
88-629	Amends official zoning map (Special)
88-630	Amends official zoning map (Special)
88-631	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. 88-631 (Special)
88-632	Amends official zoning map (Special)
88-633	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. 88-633 (Special)
88-634	Amends official zoning map (Special)
88-635	(Deferred)
88-636	Amends official zoning map (Special)
88-637	Amends official zoning map (Special)
88-638	Amends official zoning map (Special)
88-639	Amends official zoning map (Special)
88-640	Amends official zoning map (Special)
Amdt.	Amends Ord. 88-640 (Special)
88-641	Approves lease with Heart of Metro Enterprises, Inc. (Special)
88-642	Approves agreement for use of ingress and egress easement (Special)
88-643	Alley vacation (Special)
Amdt. 1	Amends § 1 of Ord. 88-643 (Special)
89-644	Amends official zoning map (Special)
89-645	Amends official zoning map (Special)
89-646	(Withdrawn)
89-647	(Deferred)
89-648	(Withdrawn)
89-649	Abandons sewer easement (Special)
89-650	Water and sewer extension (Special)
89-651	Acquisition of property for utility easements (Special)
89-652	Alley vacation (Special)
89-653	Street name change (Special)
89-654	(Deferred)
89-655	(Deferred)
89-656	Amends official zoning map (Special)
89-657	Amends official zoning map (Special)
89-658	(Withdrawn)
89-659	Acquisition of property for land and utility easements (Special)
89-660	Grants easement and requests abandonment of easement (Special)

Ordinance Number	Disposition
89-661	Sales in the Nashville Convention Center area (6.32)
89-662	(Deferred)
89-663	Abandons easement (Special)
Amdt. 1	Amends § 1 of Ord. 89-663 (Special)
89-664	Amends official zoning map (Special)
89-665	Approves state grant for victim's intervention program (Special)
89-666	Street name change (Special)
89-667	Alley vacation (Special)
89-668	Street vacation (Special)
Amdt. 1	Adds § 2 to Ord. 89-668 (Special)
89-669	Amends official zoning map (Special)
Amdt. 1	Amends Ord. 89-669 (Special)
89-670	Amends official zoning map (Special)
Amdt. 1	Amends Ord. 89-670 (Special)
89-671	(Withdrawn)
89-672	Amends official zoning map (Special)
89-673	Amends official zoning map (Special)
89-674	(Withdrawn)
89-675	Amends §§ 103.311(j), 103.313(l), 103.315(f), 103.316(g), 103.317(f), 103.318(h), 103.319(j), 103.320(i), 103.321(k), 103.322(f), 103.323(g), 103.41(d), 103.43(d), 103.431(e), 103.450(f), 103.460(f), 103.52(f), 103.521(e), 103.61(g), 103.62(d), 103.70(c), 103.81(g) and 103.90(6) of prior code Appx. A, zoning (Repealed by 96-555)
89-676	Amends official zoning map (Special)
89-677	Amends official zoning map (Special)
89-678	Amends official zoning map (Special)
89-679	Amends official zoning map (Special)
89-680	Amends official zoning map (Special)
89-681	Abandons sewer easement (Special)
89-682	Acquisition of property for land and utility easements (Special)
89-683	Authorizes acquisition of property for public project (Special)
89-684	Acquisition of temporary easements (Special)
Amdt. 1	Amends Ord. 89-684 (Special)
89-685	(Withdrawn)
89-686	(Withdrawn)
89-687	(Withdrawn)
89-688	(Withdrawn)
89-689	Amends lease with Doctor's Pavilion Ltd., Inc. (Special)
89-690	Approves addendum to agreement between Metropolitan Government of Nashville and Davidson County (Special)
89-691	Appropriations (Special)
89-692	Authorizes construction and maintenance of aerial cable (Special)
89-693	Street vacation (Special)
89-694	(Defeated)
89-695	(Failed)
89-696	Amends official zoning map (Special)
89-697	Amends official zoning map (Special)
89-698	Alley vacation (Special)
Amdt. 1	Amends caption of Ord. 89-698 (Special)
Amdt. 2	Amends Ord. 89-698 (Special)
89-699	Alley vacation (Special)
Amdt. 1	Amends Ord. 89-699, alley vacation (Special)
89-700	Amends official zoning map (Special)
89-701	Amends official zoning map (Special)
89-702	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. 89-702 (Special)
89-703	Amends official zoning map (Special)
89-704	Amends official zoning map (Special)
89-705	Amends official zoning map (Special)
89-706	Amends official zoning map (Special)
89-707	Amends official zoning map (Special)
89-708	Cancels commercial planned unit development district (Special)
89-709	Amends official zoning map (Special)
89-710	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. 89-710, (Special)
89-711	Adds § 101.25(o) to prior code Appx. A, zoning (Repealed by 96-555)
89-712	Repeals prior code § 11-1-29.2 (Repealer)
89-713	Acquisition of property for landfill site investigation (Special)
Amdt. 1	Amends Ord. 89-713 (Special)
Amdt. 2	Amends § 1 of Ord. 89-713 (Special
Amdt. 3	Amends § 1 of Ord. 89-713 (Special)
Amdt. 4	Amends § 1 of Ord. 89-713 (Failed)
Amdt. 5	Amends § 1 of Ord. 89-713 (Special)
89-714	Adopts plan of services (Special)
89-715	Extends boundaries of urban services district (Special)
89-716	(Deferred)
89-715	Extends Urban Services District boundaries (Chapter Appx. 1)
89-717	Rezone and adds § C.2.b.(9) to Urban Renewal Plan (Special)
89-718	Authorizes receipt of moneys for construction of water line (Special)
89-719	Abandons sewer easements (Special)
89-720	Amends Ord. 88-555, urban services district (Charter Appx. 1)
89-721	Amends official zoning map (Special)
89-722	Amends official zoning map (Special)
Amdt. 1	Adds language to § 1 of Ord. 89-722 (Special)

Ordinance Number	Disposition
89-723	Approves maintenance contract (Special)
89-724	Alley vacation (Special)
Amdt. 1	Adds § 2 to and renumbers §§ 2—4 as 3—5 of Ord. 89-724 (Special)
89-725	Authorizes contract for certain utilities (Special)
89-726	Authorizes contract for certain utilities (Special)
89-727	Authorizes contract for certain utilities (Special)
89-728	Acquisition of property for street improvements (Special)
89-729	Acquisition of property for street improvements (Special)
89-730	Names certain street (Special)
89-731	Street vacation (Special)
Amdt. 1	Adds § 2 to and renumbers §§ 2—4 as 3—5 of Ord. 89-731 (Special)
89-732	(Deferred)
89-733	Readoption of Code to and including Supp. No. 47, 12-88 (Special)
89-734	Approves sale of property (Special)
89-735	Approves sale of property (Special)
89-736	(Defeated)
89-737	Vicious dogs (8.08)
89-738	Authorizes execution of quitclaim deed (Special)
89-739	Authorizes contract supplement for adjustment or construction of utility lines (Special)
89-740	Abandons easements (Special)
89-741	Acquisition of property for utility easements (Special)
89-742	Street and alley vacation (Special)
89-743	(Deferred)
89-744	Approves traffic signal contract (Special)
89-745	Acquisition of property for street improvements (Special)
89-746	Acquisition of property for street improvements (Special)
89-747	(Deferred)
89-748	Adds prior code § 29-1-68, nonsubscription newspapers and similar materials (11.32)
Amdt. 1	Repeals and replaces prior code § 29-1-68(a), nonsubscription newspapers and similar materials (11.32)
Amdt. 2	Repeals and replaces § 2 of Ord. 89-748, nonsubscription newspapers and similar materials (Not codified)
89-749	Conveys right-of-way easement (Special)
Amdt. 1	Repeals and replaces Exhibit A of Ord. 89-749 (Special)
89-750	Amends official zoning map (Special)
89-751	(Withdrawn)
89-752	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. 89-752 (Special)
Amdt. 2	Amends Ord. 89-752 (Special)
89-753	Amends official zoning map (Special)
89-754	Amends official zoning map (Special)
89-755	Amends official zoning map (Special)
89-756	Amends official zoning map (Special)
89-757	Amends official zoning map (Special)
89-758	Amends official zoning map (Special)
89-759	Amends official zoning map (Special)
89-760	(Withdrawn)
89-761	Amends official zoning map (Special)
89-762	Amends official zoning map (Special)
89-763	Amends § 13.51 of prior code Appx. A, zoning (Repealed by 96-555)
89-764	Amends official zoning map (Special)
89-765	Amends official zoning map (Special)
89-766	Amends official zoning map (Special)
89-767	Amends official zoning map (Special)
89-768	Amends official zoning map (Special)
89-769	Amends official zoning map (Special)
89-770	Amends official zoning map (Special)
89-771	Amends official zoning map (Special)
89-772	Amends official zoning map (Special)
89-773	Amends official zoning map (Special)
Amdt. 1	Amends language in § 1 of Ord. 89-773 (Special)
89-774	(Failed)
89-775	Amends official zoning map (Special)
89-776	Amends official zoning map (Special)
89-777	Amends official zoning map (Special)
89-778	Amends official zoning map (Special)
89-779	(Failed)
89-780	(Withdrawn)
89-781	Adds § 102.13 to and amends § 81.60 of prior code Appx. A, zoning (Repealed by 96-555)
89-782	Street name change (Special)
Amdt. 1	Repeals and replaces § 1 of Ord. 89-782 (Special)
89-783	Street name change (Special)
89-784	Street vacation (Special)
89-785	Street vacation (Special)
89-786	Easement vacation (Special)
89-787	Amends street and alley acceptance and maintenance map (Special)
89-788	Adopts property identification maps (Special)
89-789	Authorizes legal services contract (Special)
89-790	Abandons water easement (Special)
89-791	Authorizes recodification of Metropolitan Code (Special)

Ordinance Number	Disposition
89-792	Repeals and replaces prior code § 14-1-16(f), board of electrical examiners and appeals (2.76)
89-793	Authorizes amendment to wastewater trunk and treatment services agreement (Special)
89-794	Approves contract with Department of Transportation for ridesharing program (Special)
89-795	Approves permit agreement (Special)
Amdt. 1	Amends Ord. 89-795 (Special)
89-796	Streets and sidewalks (12.56)
Amdt. 1	Amends § 3 of Ord. 89-796, streets and sidewalks (12.56)
89-797	Street name change (Special)
89-798	Names certain street (Special)
89-799	(Withdrawn)
89-800	Street vacation (Special)
89-801	Alley vacation (Special)
89-802	Approves development of low-rent housing project (Special)
Amdt. 1	Substitutes Exhibit A of Ord. 89-802 (Special)
Amdt. 2	Amends Exhibit A of Ord. 89-802 (Special)
Amdt. 3	Amends Exhibit A of Ord. 89-802 (Special)
89-803	Approves state contract for use of offender-based correction information system (Special)
89-804	Alley vacation (Special)
89-805	Abandons right-of-way (Special)
89-806	Authorizes loan guarantees for community development block grant program (Special)
89-807	(Deferred)
89-808	Approves contract with National Council on Aging (Special)
89-809	Authorizes contract with Nashville Area Chamber of Commerce (Special)
89-810	Authorizes contract for adjustment or construction of certain utilities (Special)
89-811	Authorizes amendment to wastewater trunk and treatment agreement (Special)
89-812	Adds prior code § 39-1-55 (c)(3)(e), motor vehicle storage fees (Repealed by 91-1650)
89-813	Amends §§ 20-1-187.1(b), 20-1-189(b), (c) and (d), and 20-1-191 and repeals and replaces §§ 20-1-183 and 20-1-186(a) of prior code, public swimming pools (10.48)
89-814	Adds §§ 4-1-19(c) and 4-1-20(e) and (f) to prior code, air pollution penalties (10.56)
89-815	Adopts capital improvements budget and program for 1989-90 (Special)
Amdt. 1	Amends Ord. 89-815 (Special)
Amdt. 2	Amends Ord. 89-815 (Special)
Amdt. 3	Amends Ord. 89-815 (Special)
Amdt. 4	Amends Ord. 89-815 (Special)
Amdt. 5	Amends Ord. 89-815 (Special)
Amdt. 6	Amends Ord. 89-815 (Special)
Amdt. 7	Amends Ord. 89-815 (Special)
Amdt. 8	Amends Ord. 89-815 (Special)
Amdt. 9	Amends Ord. 89-815 (Special)
Amdt. 10	Amends Ord. 89-815 (Special)
Amdt. 11	Amends Ord. 89-815 (Special)
Amdt. 12	Amends Ord. 89-815 (Special)
Amdt. 13	Amends Ord. 89-815 (Special)
Amdt. 14	Amends Ord. 89-815 (Special)
89-816	Adopts operating budget for 1989-90 (Special)
89-817	1989-90 tax levy (Special)
89-818	Amends prior code §§ 11A-1-18(a) and 11A-1-21(e), cable communication franchise fees (Repealed by 95-1368)
Amdt. 1	Repeals and replaces § 1, deletes § 2 and renumbers § 3 to be § 2 of Ord. 89-818, cable communication franchise fees (Repealed by 95-1368)
89-819	Amends prior code § 24-1-63, privilege taxes on litigation (5.16)
89-820	Amends prior code § 33-1-37, plumbing code inspection fees (16.12)
89-821	Amends prior code § 14-1-39, electrical code inspection fees (16.20)
89-822	Repeals and replaces prior code § 22-1-42(a), housing code inspection fees (Repealed by BL2001-585)
89-823	Repeals and replaces § 1 of Ord. 88-518 to add § 104.11(1) of prior code Appx. A, zoning (Repealed by 96-555)
89-824	Amends § 85.50 to prior code Appx. A, zoning (Repealed by 96-555)
Amdt. 1	Repeals and replaces § 1 of Ord. 89-824 to delete and substitute § 85.50, zoning (Repealed by 96-555)
89-825	Amends three portions of prior code § 36-2-15(b), fees at sanitary landfills, incinerators and other collection stations (10.20)
Amdt. 1	Amends § 1 and repeals and replaces § 3 of Ord. 89-825, collection station fees (Repealed by 93-821)
Amdt. 2	Adds paragraph to and changes "July 1, 1989" to "January 1, 1990" in § 1 of Ord. 89-825, collection station fees (Repealed by 93-821)
Amdt. 3	Adds § 5 to Ord. 89-825, collection station fees (10.20)
89-826	Repeals and replaces prior code § 36-2-10, curbside garbage pickup (10.20)

Ordinance Number	Disposition
Amdt. 1	Adds §§ 2 and 3 to and renumbers § 2 as 4 of Ord. 89-826, curbside garbage pickup (10.20)
Amdt. 2	Amends § 1 of Ord. 89-826, curbside garbage pickup (10.20)
89-827	Abandons sewer easement (Special)
89-828	Amends §§ 33-1-28 and 33-1-67 and repeals and replaces § 33-1-68(c) of prior code, plumbing code (6.52, 16.12)
89-829	Acquisition of property for street improvements (Special)
89-830	Accepts street construction proposal (Special)
89-831	Acquisition of property for street improvements (Special)
89-832	Adds unnumbered section to prior code, authority to issue summonses (1.24)
89-833	Amends § 102.321 of prior code Appx. A, zoning (Repealed by 96-555)
Amdt. 1	Repeals and replaces § 1 of Ord. 89-833 to repeal and replace § 102.321 of prior code Appx. A, zoning (Repealed by 96-555)
89-834	Amends § 10.57.080 (10.57)
89-835	Street vacation (Special)
Amdt. 2	Amends caption and § 1 of Ord. 89-835 (Special)
89-836	(Deferred)
89-837	(Withdrawn)
89-838	Amends official zoning map (Special)
89-839	Amends official zoning map (Special)
Amdt. 1	Amends Ord. 89-839 (Special)
Amdt. 2	Amends § 1 of Ord. 89-839 (Special)
89-840	(Withdrawn)
89-841	(Withdrawn)
89-842	Amends official zoning map (Special)
Amdt. 1	Amends Ord. 89-842 (Special)
89-843	Amends official zoning map (Special)
89-844	Street vacation (Special)
89-845	Street vacation (Special)
89-846	(Withdrawn)
89-847	(Withdrawn)
89-848	Amends official zoning map (Special)
89-849	Amends drainage and public utility easement (Special)
89-850	Abandons utility easement (Special)
89-851	Street vacation (Special)
89-852	Approves letter of intent for bridge design and replacement work (Special)
89-853	Amends official zoning map (Special)
Amdt. 1	Amends Ord. 89-853 (Special)
89-854	(Withdrawn)
89-855	Alley vacation (Special)
89-856	Approves property exchange (Special)
89-857	Grants and donations for human relations commission; amends prior code § 2-1-93(j) (Repealed by 93-910)
89-858	Authorizes creation of water and sewerage easement (Special)
89-859	Approves contract amendment for maternal and infant care project (Special)
89-860	(Withdrawn)
89-861	Street name change (Special)
89-862	Acquisition of property for utility easements (Special)
89-863	Accepts street improvement proposal (Special)
89-864	Amends official zoning map (Special)
89-865	Amends official zoning map (Special)
89-866	Amends official zoning map (Special)
89-867	(Deferred)
89-868	Amends official zoning map (Special)
89-869	(Deferred)
89-870	Amends official zoning map (Special)
89-871	Amends official zoning map (Special)
89-872	Amends official zoning map (Special)
89-873	(Withdrawn)
89-874	(Deferred)
89-875	Amends official zoning map (Special)
89-876	Amends official zoning map (Special)
89-877	Creates position of chief of plans review and construction enforcement (Special)
89-878	Abandons and accepts rights-of-way (Special)
89-879	Abandons utility easements (Special)
89-880	Authorizes public library board contract (Special)
89-881	Amends prior code § 2-1-54, beautification bureau (2.152)
89-882	Authorizes use of community development block grant funds (Special)
89-883	Authorizes emergency ambulance and rescue service billing changes (Special)
89-884	(Withdrawn)
89-885	Wastewater treatment and transportation services (Special)
89-886	Street and alley vacation (Special)
Amdt. 1	Amends Ord. 89-886 (Special)
89-887	Amends official zoning map (Special)
89-888	Amends official zoning map (Special)
89-889	Approves sale of property (Special)
Amdt. 1	Amends § 1 of Ord. 89-889 (Special)
89-890	Approves sale of property (Special)
89-891	Approves sale of property (Special)
89-892	Approves sale of property (Special)
89-893	Approves sale of property (Special)
89-894	Authorizes utility adjustment or construction project (Special)

Ordinance Number	Disposition
Amdt. 1	Amends § 1 of Ord. 89-894 (Special)
89-895	Abandons sewer easement (Special)
89-896	(Deferred)
89-897	(Withdrawn)
89-898	(Deferred)
89-899	Street name change (Special)
89-900	Street name change (Special)
89-901	Amends official zoning map (Special)
89-902	Amends official zoning map (Special)

Ordinance Number	Disposition
89-903	Rezone (Special)
89-904	Amends zoning map (Special)
Amdt. 1	Amends Ord. 89-904 (Special)
89-905	Rezone (Special)
89-906	Amends zoning map (Special)
89-907	Rezone (Special)
89-908	Amends zoning map (Special)
89-909	(Withdrawn)
89-910	Approves cooperative agreement with Department of Interior (Special)
89-911	Approves cooperative agreement with Department of Interior (Special)
89-912	Approves contract for Digital ESSX XL service (Special)
89-913	Approves rehabilitation program contract (Special)
89-914	Vacates portion of Donelson Street (Special)
89-915	Abandons easements retained by Ords. 66-892, 71-1510 and 81-618 (Special)
89-916	Alley vacation (Special)
89-917	Alley vacation (Special)
89-918	Alley vacation (Special)
89-919	Amends zoning map (Special)
89-920	Amends zoning map (Special)
89-921	Rezone (Special)
89-922	(Deferred)
89-923	Rezone (Special)
89-924	Amends zoning map (Special)
89-925	Amends zoning map (Special)
89-926	(Withdrawn)
89-927	Rezone (Special)
89-928	(Deferred)
89-929	Amends §§ 101.45, 102.30, 103.318 and 103.51 of prior code Appx. A, zoning (Repealed by 96-555)
89-930	Rezone (Special)
Amdt. 1	Amends caption and § 1 of Ord. 89-930 (Special)
Amdt. 2	Amends Ord. 89-930 (Special)
89-931	Rezone (Special)
89-932	(Tabled)
89-933	Revises land use plan map and urban renewal plan (Special)
89-934	Approves contract with state for administrative support to the chief medical examiner (Special)
89-935	Approves lease of certain premises (Special)
89-936	(Failed)
89-937	Abandons certain easement (Special)
89-938	Vacates portion of Clearview Drive (Special)
89-939	Rezone (Special)
89-940	Amends zoning map (Special)
89-941	Rezone (Special)
89-942	(Deferred)
89-943	(Withdrawn)
89-944	Amends zoning map (Special)
89-945	(Deferred)
89-946	Acquisition of property for utility easements (Special)
89-947	Acquisition of property for utility easements (Special)
89-948	Abandons certain sewer easement (Special)
89-949	Rezone (Special)
89-950	Rezone (Special)
89-951	Rezone (Special)
89-952	Approves sale of certain property (Special)
89-953	Vacates portion of Burns Avenue (Special)
89-954	Amends zoning map (Special)
Amdt. 1	Repeals and replaces sketch portion of § 1 of Ord. 89-954 (Special)
89-955	Rezone (Special)
89-956	Amends zoning map (Special)
Amdt. 1	Repeals and replaces plan in § 1 of Ord. 89-956 (Special)
89-957	Rezone (Special)
89-958	(Deferred)
89-959	Adds language to § 30A-1-1 of prior code, parks (13.24)
89-960	Repeals and adds language to prior code § 24-1-63, litigation tax exemptions (5.16)
89-961	Relinquishes certain water service rights (Special)
89-962	Relinquishes certain water service rights (Special)
89-963	Authorizes contract for litter pickup by Metropolitan Workhouse inmates (Special)
89-964	Contract for traffic-control signals (Special)
89-965	(Failed)
89-966	Amends prior code § 11-1-15(a) and (b) and repeals § 11-1-15(c), bonds for contractors and subcontractors (Repealed by 94-1226)
89-967	Abandons portion of Deervale Drive (Special)
89-968	Abandons portion of Lucile Street (Special)
89-969	Alley vacation (Special)
89-970	Renames certain street (Special)
89-971	Rezone (Special)
89-972	Rezone (Special)
89-973	Amends zoning map (Special)
89-974	Rezone (Special)
89-975	(Withdrawn)
89-976	Sale of certain surplus property (Special)
89-977	(Deferred)

Ordinance Number	Disposition
89-978	Sale of certain surplus property (Special)
89-979	Rezone (Special)
89-980	Vacates portion of Castlegate Drive (Special)
89-981	Street closure (Special)
89-982	Sale of certain surplus property (Special)
Amdt. 1	Repeals and replaces Exhibit A of Ord. 89-982 (Special)
89-983	(Withdrawn)
89-984	Acquisition of property (Special)
89-985	Accepts certain water and sewer facility extensions (Special)
89-986	Amends prior code § 27-1-145, fine for parking in fire or safety zones; repeals Ord. 88-440 (12.40)
89-987	Rezone (Special)
89-988	Renames certain road (Special)
89-989	Adds § 11.121(e) and Art. VIII-A (§§ 72.00A—72-92A) to and amends § 12.10 of prior code Appx. A, zoning (Repealed by 96-555)
89-990	Amends zoning map (Special)
89-991	Amends §§ 13.61(B), A22.20, 31.13, 32.10, 32.20, 35.31, 35.32, 42.10, 83.30, 103.318(i), 103.323(e) and 103.43(c), repeals and replaces §§ 13.00(c)(2) and (3), 13.61(c) and 35.021, and repeals §§ 33.112, 103.41 and 103.411 of prior code Appx. A, zoning (Repealed by 96-555)
Amdt. 1	Deletes § 1(8) and renumbers (9)—(16) accordingly, and repeals and replaces portion of new § 1(8)(a)(3) of Ord. 89-991, zoning (Repealed by 96-555)
89-992	(Deferred)
89-993	Vacates portion of Old Ezell Pike (Special)
89-994	Alley vacation and dedication of right-of-way (Special)
Amdt. 1	Amends § 2 and Exhibit A of Ord. 89-994 (Special)
89-995	Amends prior code §§ 8-1-8 and 8-1-9 and repeals and replaces §§ 8-1-5(a) and 8-1-10, rabies control fees (8.04)
Amdt. 1	Amends § 1 of Ord. 89-995 [§ 8-1-5(a)], rabies control fees (8.04)
89-996	Approves grant of funds for victim intervention program (Special)
89-997	(Deferred)
89-998	Vacates portion of Old Elm Hill Pike (Special)
89-999	(Failed)
89-1000	(Failed)
89-1001	Amends portions of prior code §§ 33-1-28 and 31-1-37, plumbing code and water and sewer connection fees (16.12)
89-1002	Amends prior code §§ 14-1-29.1 and 14-1-39(15), electrical code, and § 210-B(c) of Metropolitan Electrical Code (16.20)
89-1003	Amends § 11-1-44(b) and repeals and replaces § 11-1-29, technical building codes (16.08, 16.28)
89-1004	(Deferred)
89-1005	(Withdrawn)
89-1006	Rezone (Special)
89-1007	Amends zoning map (Special)
89-1008	Amends zoning map (Special)
89-1009	(Deferred)
89-1010	Repeals prior code § 11A-1-21(e) and transfers certain CATV special revenue account funds (Repealed by 95-1368)
89-1011	Approves Five Points redevelopment plan (Special)
Amdt. 1	Adds parts (l)—(n) to § B.2 of Ord. 89-1011 (Special)
Amdt. 2	Repeals and replaces § B.3 of Ord. 89-1011 (Special)
Amdt. 3	Adds language to § C.2.b, page 9 of Ord. 89-1011 (Special)
Amdt. 4	Repeals and replaces § D of Ord. 89-1011 (Special)
Amdt. 5	Repeals and replaces § A, table of contents, of Ord. 89-1011 (Special)
Amdt. 6	Adds § 9 to Ord. 89-1011, advisory committee for redevelopment plan (Special)
89-1012	Amends zoning map (Special)
89-1013	Rezone (Special)
89-1014	Amends portion of prior code § 11A-1-4, CATV special committee (Repealed by 95-1368)
89-1015	Amends prior code § 2-1-101.72, Metropolitan Convention Center commission (2.124)
89-1016	Amends §§ 2-1-130(a) and 2-1-131(c) and repeals § 2-1-131(c) of prior code, board of ethical conduct (Repealed by 95-32)
89-1017	Repeals and replaces portion of prior code § 40-1-229(a), stormwater management committee (15.64)
89-1018	Amends § 2-1-101.32(c) and repeals and replaces § 2-1-101.32(a) of prior code, community education alliance (2.160)
89-1019	Amends portions of prior code § 2-1-101.47, highway and transportation coordinating council (2.168)
89-1020	Amends prior code § 40-1-95, procedure for acceptance of water and sewer lines (15.52)

Ordinance Number	Disposition
89-1021	Readopts The Code of The Metropolitan Government of Nashville and Davidson County, Tennessee, as codified in Chs. 1—43 and prior code Appx. A, including supplemental pages through and including those dated Supp. No. 48, 7-89; repeals other ordinances not included in the code as of 6/27/89 with specific exemptions; requires copies to be on file, and designates penalty for code violations (Not codified)
89-1022	Lease agreement for facilities for police advocacy support services (Special)
89-1023	Rezone (Special)
Amdt. 1	Deletes Parcels 30 and 31 from Map 85-14 in Ord. 89-1023 (Special)
89-1024	(Withdrawn)
89-1025	Amends zoning map (Special)
89-1026	Rezone (Special)
Amdt. 1	Repeals and replaces § 1 of Ord. 89-1026 (Special)
89-1027	(Failed)
89-1028	Repeals and replaces prior code § 33-1-30(b) and repeals § 33-1-4, plumbing code (16.12)
89-1029	False emergency calls to E-911 system (11.04)
89-1030	Vacates portion of Rolling Mill Road (Special)
89-1031	Abandons certain public utility easements (Special)
89-1032	Designates street name (Special)
89-1033	Repeals and replaces prior code § 5-1-18.2(c), beer permits for certain premises (7.08)
Amdt. 1	Adds sentence to § 2 of Ord. 89-1033, beer permits (7.08)
89-1034	Authorizes application for certain housing and community development funds (Special)
89-1035	Vacates portion of Capers Avenue (Special)
89-1036	Alley vacation (Special)
89-1037	(Withdrawn)
89-1038	Amends §§ 42-1-2, 42-1-17, 42-1-24 and 42-1-26 and repeals § 42-1-28 of prior code, operation of city scales (6.76)
89-1039	Acquisition of certain property (Special)
89-1040	Sale of surplus property (Special)
89-1041	Contract signing authority for certain project (Special)
89-1042	Acquisition of certain property (Special)
89-1043	Acquisition of certain property (Special)
89-1044	Acquisition of certain property (Special)
89-1045	Acquisition of certain property (Special)
89-1046	Acquisition of certain property (Special)
89-1047	Approves highway landscaping agreement (Special)
89-1048	Approves amended and restated agreement of convention center hotel property lease (Special)
Amdt. 1	Removes and replaces Exhibit A-1 of Ord. 89-1048 (Special)
Amdt. 2	Deletes § 2 and renumbers following sections of Ord. 89-1048 (Special)
Amdt. 3	Deletes and replaces pages 8-1—8-14 of Ord. 89-1048 (Special)
89-1049	Vacates portion of Blakemore Avenue (Special)
89-1050	Franchise transfer from 1st Cablevision, Inc., as granted by Ord. 88-240, to Robin Cable Systems, L.P., cable television (Special)
89-1051	Acquisition of certain property (Special)
89-1052	Vacates portion of Schrader Lane (Special)
89-1053	Abandons certain easements (Special)
89-1054	Adds language to § 13.8(a) of prior code Appx. A, zoning (Repealed by 96-555)
89-1055	(Failed)
89-1056	Street name changes (Special)
89-1057	Vacates portion of Straightway Circle (Special)
Amdt. 1	Attaches Exhibit 1 to § 1 of Ord. 89-1057 (Special)
89-1058	Amends zoning map (Special)
89-1059	Rezone (Special)
89-1060	Rezone (Special)
89-1061	Rezone (Special)
89-1062	Rezone (Special)
89-1063	Rezone (Special)
89-1064	(Withdrawn)
89-1065	Authorizes continuation of alcohol diversion and prevention treatment program (Not codified)
Amdt. 1	Amends § 1 of Ord. 89-1065, continuation of alcohol diversion and prevention treatment program (Not codified)
89-1066	Authorizes application for emergency shelter grant program funds (Special)
89-1067	Names Fire Station 16 in honor of Frank J. Quinn (Special)
89-1068	Acquisition of certain property (Special)
89-1069	Adds (d) to, amends title and (a) of and repeals and replaces (c) of prior code § 27-1-157.5, handicapped parking spaces (12.40)
Amdt. 1	Deletes §§ 3 and 4 and adds new § 3 [adding § 27-1-157.5(d) and (e)] to Ord. 89-1069, handicapped parking spaces (12.40)

Ordinance Number	Disposition
89-1070	Contract to provide psychological examination services to sheriff's department (Special)
89-1071	Approves certain contract (Special)
89-1072	Abandons certain easements (Special)
89-1073	Rezone (Special)
89-1074	(Deferred)
89-1075	Amends zoning map (Special)
89-1076	Amends zoning map (Special)
89-1077	Amends zoning map (Special)
89-1078	Amends zoning map (Special)
89-1079	Rezone (Special)
89-1080	Amends zoning map (Special)
Amdt. 1	Adds language to § 1 of Ord. 89-1080 (Special)
Amdt. 2	Deletes and replaces planned unit development plan in Ord. 89-1080 (Special)
89-1081	Rezone (Special)
89-1082	Abandons certain easements (Special)
89-1083	Abandons certain easements (Special)
89-1084	Abandons certain easements (Special)
89-1085	Copies of final reports made by professional services and individuals employed by metropolitan government to be filed with clerk (2.188)
Amdt. 1	Deletes certain phrase from Ord. 89-1085, filing of certain documents (2.188)
89-1086	(Withdrawn)
89-1087	Contract for certain emergency vehicle gate to highway I-65 (Special)
89-1088	Vacates portion of Hicks Road (Special)
Amdt. 1	Adds certain drawings to § 1 of Ord. 89-1088 (Special)
89-1089	Changes certain position classification (Not codified)
89-1090	Changes certain position classification (Not codified)
89-1091	Adds §§ 37-1-19(c)(3), 37-1-25(f)—(h) and 37-1-29; amends §§ 37-1-20, 37-1-28 and 37-1-32(b), and repeals and replaces §§ 37-1-16(c), 37-1-20 (first line), (k), (s) and (u), 37-1-22, 37-1-24 and 37-1-25(c)—(e) of prior code, charitable solicitations (6.64)
89-1092	Repeals and replaces prior code § 11-1-34(c), statutory requirements for practice of architecture and engineering (16.28)
89-1093	Street name change (Special)
89-1094	Acquisition of certain property (Special)
89-1095	(Withdrawn)
90-1096	Rezone (Special)
90-1097	Authorizes conveyance of property (Special)
90-1098	Closes operation of Cleese's Ferry on the Cumberland River (Special)
90-1099	(Deferred)
90-1100	Vacates portion of Excella Place (Special)
90-1101	Application for assistance in road construction project (Special)
90-1102	Vacates portion of Shady Oak Drive (Special)
90-1103	Rezone (Special)
90-1104	Rezone (Special)
90-1105	Acceptance of street dedication (Special)
90-1106	User fee per vehicle for ferry trips (12.80)
Amdt. 1	Deletes and adds § 1 of Ord. 90-1106, ferry operation hours and trip fee (12.80)
Amdt. 2	Adds language to new § 1 of Ord. 90-1106, report on operation of Cleese's Ferry (12.80)
90-1107	Burglar and fire alarm systems (Repealed by 91-1523)
Amdt. 1	Adds new § 9 and renumbers former § 9 of Ord. 90-1107 to be § 10, alarm systems (Repealed by 91-1523)
Amdt. 2	Adds new § 9 and renumbers former § 9 of Ord. 90-1107 to be § 10, alarm systems (Failed)
90-1108	Adds paragraph to prior code § 36-2-15(b), reduced dump fee for certain materials (10.20)
90-1109	Amends zoning map (Special)
90-1110	(Failed)
90-1111	Acquisition of certain property (Special)
Amdt. 1	Repeals and replaces § 6 of Ord. 90-1111 (Special)
Amdt. 2	Deletes reference to certain property in Exhibit A of Ord. 90-1111 (Special)
Amdt. 3	Adds language to § 4 of Ord. 90-1111 (Special)
90-1112	Allocates payments from certain grant (Special)
90-1113	(Deferred)
90-1114	(Tabled)
90-1115	Amends portion of prior code § 32-1-35, eligibility for medical care benefits (3.24)
90-1116	Procedures for sale of surplus personal property of the metropolitan government (Repealed by 92-210)
90-1117	Alley closure (Special)
90-1118	(Withdrawn)
90-1119	Abandons portion of Annex Avenue (Special)
90-1120	Abandons certain right-of-way (Special)
90-1121	Alley vacation (Special)
90-1122	Street name change (Special)
90-1123	(Deferred)
90-1124	(Failed)
90-1125	Rezone (Special)
90-1126	Zoning map amendment (Special)

Ordinance Number	Disposition
Amdt. 1	Repeals and replaces plan attached to Ord. 90-1126 (Special)
90-1127	Zoning map amendment (Special)
90-1128	Zoning map amendment (Special)
90-1129	Vacates portion of certain street (Special)
90-1130	Alley vacation (Special)
90-1131	(Deferred)
90-1132	Vacates portion of Batavia Street (Special)
90-1133	(Deferred)
90-1134	Rezone (Special)
90-1135	Rezone (Special)
90-1136	Amends zoning map (Special)
90-1137	Amends zoning map (Special)
Amdt. 1	Amends § 1 of Ord. 90-1137 (Special)
90-1138	Rezone (Special)
90-1139	Rezone (Special)
90-1140	Rezone (Special)
90-1141	(Deferred)
90-1142	Amends portion of prior code § 36-2-15(b), use of dump fee moneys (Repealed by 90-1318)
Amdt. 1	Repeals and replaces § 1 of Ord. 90-1142, use of dump fee moneys (Repealed by 90-1318)
90-1143	(Withdrawn)
90-1144	Names Fire Station 19 in honor of Willis A. McCallister (Special)
90-1145	Street name change (Special)
90-1146	Accepts alley vacation and dedication of other property (Special)
90-1147	Sale of certain surplus property (Special)
90-1148	Sale of certain surplus property (Special)
90-1149	Approves revision to a joint use agreement approved by Ord. 88-151 (Special)
90-1150	Amends § 1 of Ord. 89-1065, alcohol diversion and prevention treatment program (Not codified)
90-1151	Sewer line construction project costs (Special)
90-1152	Franchise grant to Aratex Services, Inc., utility pipelines (Special)
90-1153	Alley vacation (Special)
90-1154	(Withdrawn)
90-1155	Rezone (Special)
Amdt. 1	Amends sketch portion of Ord. 90-1155 (Special)
90-1156	Rezone (Special)
90-1157	Amends agreement with Department of the Interior adopted by Ord. 89-910 (Special)
90-1158	(Deferred)
90-1159	Amends portions of prior code § 34-1-4.1(b) and (c), special police commissions (2.44)
90-1160	(Deferred)
90-1161	Sale of certain surplus property (Special)
90-1162	Alley vacation (Special)
90-1163	Rezone (Special)
90-1164	Rezone (Special)
90-1165	Adds (f) to and repeals and replaces (e) of prior code § 32-1-4, employee benefit programs (3.08)
Amdt. 1	Amends portion of § 2 of Ord. 90-1165, employee benefit programs (3.08)
90-1166	Small and minority business development program (Repealed by 92-210)
90-1167	(Deferred)
90-1168	(Deferred)
90-1169	Vacates portion of Franklin Pike Circle (Special)
90-1170	Adopts Official Street and Alley Acceptance and Maintenance Map with all changes to date (Special)
90-1171	Rezone (Special)
90-1172	Rezone (Special)
90-1173	Rezone (Special)
90-1174	Amends zoning map (Special)
90-1175	Rezone (Special)
90-1176	Rezone (Special)
90-1177	Amends zoning map (Special)
90-1178	Amends zoning map (Special)
90-1179	Repeals and replaces § 102.10 of prior code Appx. A, zoning (Repealed by 96-555)
90-1180	Repeals and replaces § 33.281 of prior code Appx. A, zoning (Repealed by 96-555)
90-1181	Alley vacation (Special)
90-1182	Sale of certain surplus property (Special)
90-1183	(Missing)
90-1184	Vacates portion of certain land (Special)
90-1185	Amends zoning map (Special)
90-1186	Rezone (Special)
90-1187	Approves agreement for certain electrical power service (Special)
90-1188	Creates position in unclassified service (Not codified)
90-1189	Creates position in unclassified service (Not codified)
90-1190	Amends prior code § 30A-1-1, parks (13.24)
90-1191	Recycled paper purchase and use policy (Repealed by 92-210)
90-1192	Sale of certain surplus property (Special)
90-1193	Street name change (Special)
Amdt. 1	Amends portion of § 1 of Ord. 90-1193 (Special)
90-1194	Acquisition of certain property (Special)
90-1195	(Failed)
90-1196	Adopts certain property identification maps for tax assessment purposes (5.24)
90-1197	Amends certain lease agreement (Special)

Ordinance Number	Disposition
Amdt. 1	Changes "Westwood Avenue" to "Westwood Drive" in Ord. 90-1197 (Special)
90-1198	(Deferred)
90-1199	Amends zoning map (Special)
90-1200	Amends zoning map (Special)
Amdt. 1	Amends portions of Ord. 90-1200 concerning owners of record (Special)
90-1201	Rezone (Special)
90-1202	Amends zoning map (Special)
90-1203	Amends zoning map (Special)
90-1204	Amends zoning map (Special)
Amdt. 1	Amends Ord. 90-1204 by substituting plans (Special)
90-1205	Rezone (Special)
Amdt. 1	Amends § 1 of Ord. 90-1205 (Special)
90-1206	Vacates certain right-of-way (Special)
90-1207	Readopts The Code of The Metropolitan Government of Nashville and Davidson County, Tennessee, as codified in Chs. 1—43 and prior code Appx. A, including supplemental pages through and including those dated Supp. No. 49, 12-89; repeals other ordinances not included in the code as of 6/27/89 with specific exemptions; requires copies to be on file, and designates penalty for code violations (Not codified)
90-1208	(Withdrawn)
90-1209	(Deferred)
90-1210	Acquisition of certain property (Special)
90-1211	Acquisition of certain property (Special)
90-1212	(Deferred)
90-1213	Authorizes contract for purchase of services (Special)
90-1214	Deletes portion of prior code § 27-1-119.1, traffic congestion in parking lots (12.68)
90-1215	(Deferred)
90-1216	Accepts dedication of certain road (Special)
90-1217	Amends contract with Chamber of Commerce and authorizes appropriation for tourism promotion (Special)
90-1218	Approves amendment to certain agreement with Hickory Downs Venture and CSX Transportation (Special)
90-1219	Vacates portion of 42nd Avenue North (Special)
90-1220	Street name change (Special)
90-1221	Street name change (Special)
90-1222	Street name change (Special)
90-1223	(Failed)
90-1224	Rezone (Special)
90-1225	Amends zoning map (Special)
90-1226	Rezone (Special)
90-1227	Authorizes contract for tourism promotion activities (Special)
90-1228	Approves amendment to contract with State Department of Health and Environment for maternal and infant care project (Special)
90-1229	Accepts conveyance of certain property (Special)
90-1230	Defines prostitution and sexual activity, repeals §§ 29-1-49 and 29-1-50 and adds new section prohibiting prostitution (11.16)
Amdt. 1	Repeals and replaces subsection (c) of § 1 of Ord. 90-1230 (11.16)
90-1231	(Withdrawn)
90-1232	Adopts capital improvements budget and program for 1990-91 through 1995-96 (Special)
Amdt. 1	Adds certain project to Ord. 90-1232 (Special)
Amdt. 2	Changes portion of Ord. 90-1232 concerning Bell Road to Countryway Drive (Special)
Amdt. 3	Adds certain project to Ord. 90-1232 (Special)
Amdt. 4	Adds certain project to Ord. 90-1232 (Special)
Amdt. 5	Adds certain project to Ord. 90-1232 (Special)
90-1233	Authorizes signature of certain library system contract addendum (Special)
90-1234	Approves grant for benefit of victim intervention program (Special)
90-1235	Budget for 1990-91 (Special)
90-1236	Tax levy for 1990-91 (Special)
90-1237	Franchise grant to Cable USA, Inc., cable television (Special)
90-1238	(Deferred)
90-1239	Acquisition of certain property (Special)
90-1240	(Withdrawn)
90-1241	Alley vacation (Special)
90-1242	Street name change (Special)
90-1243	Street name change (Special)
90-1244	Rezone (Special)
90-1245	Rezone (Special)
90-1246	Amends zoning map (Special)
90-1247	Adds subsection (F) to § 2 of Ord. 901107, burglar and fire alarm systems (Repealed by 91-1523)
90-1248	Inspection fee for private fire hydrant flow tests (15.68)
90-1249	Acquisition of certain property (Special)
90-1250	Amends prior code §§ 15-1-18(h) and (i) and 15-1-19, contracts and purchases requiring competitive bids (Repealed by 92-210)

Ordinance Number	Disposition
90-1251	Real estate lease agreement (Special)
Amdt. 1	Repeals and replaces Exhibit 1 of Ord. 90-1251 (Special)
90-1252	Acquisition of certain property (Special)
90-1253	Amends prior code §§ 2-1-24(a) and (b) and §§ 33-1-2 and 33-1-60 of the Metropolitan Plumbing Code; repeals and replaces entirety of Ch. 19, gas/mechanical regulations; repeals and replaces § 2-1-31; deletes § 14-1-32(c) of the electrical code, and deletes the word "mechanical" throughout Art. II of Ch. 19, technical building code regulations (2.20, 2.80, 2.84, 16.12, 16.16, 16.20)
Amdt. 1	Adds § 10 to Ord. 90-1253 [deletes prior code § 11-1-29.1] and amends § 11-1-30, technical building codes (Not codified)
90-1254	Approves water and sewer line relocation agreement (Special)
90-1255	Adds penalty language to prior code §§ 27-1-30—27-1-32, 27-1-33(a), 27-1-34, 27-1-52, 27-1-56, 27-1-58(b)—(d), 27-1-60(a)(1) and (2), (c)(1) and (2) and (d), 27-1-62(a)(1) and (2), 27-1-63, 27-1-71, 27-1-73—27-1-79, 27-1-81(a)—(d), 27-1-82(a)—(d), 27-1-83, 27-1-88, 27-1-89(b), 27-1-90—27-1-94, 27-1-95(a) and (b), 27-1-96(a) and (b), 27-1-97, 27-1-98(a) and (b), 27-1-99(a) and (b), 27-1-100, 27-1-101(a), 27-1-102(a), 27-1-103(a)—(c), 27-1-104, 27-1-105, 27-1-106(a)—(d), 27-1-107(a) and (b), 27-1-108, 27-1-109(a), 27-1-110, 27-1-111(a)—(c), 27-1-113, 27-1-114(b), 27-1-115(b), 27-1-116(a) and (b), 27-1-117, 27-1-118, 27-1-119(a)—(c), 27-1-119.1, 27-1-123, 27-1-129, 27-1-131, 27-1-131.1(b), 27-1-183(b) and (c), 27-1-184, 27-1-185, 27-1-186(a) and (b), 27-1-187, 27-1-188(a), 27-1-232(c), 27-1-260(a), 27-1-261, 27-1-262, 27-1-263(a) and (b), 27-1-264(a) and (b), 27-1-265(a) and (b), 27-1-266, 27-1-269(d), 27-1-270, 27-1-271 (b) and 27-1-285, pertaining to vehicles and traffic; amends § 27-1-35, 27-1-70, and sets minimum penalty for violation of §§ 27-1-84(a) and (b), 27-1-85(a) and (b), 27-1-280(a)—(d), 27-1-281—27-1-284, 27-1-286 and 27-1-287, driving rules and vehicle equipment (5.32, 12.08, 12.12, 12.16, 12.20, 12.24, 12.28, 12.32, 12.36, 12.52, 12.64, 12.68, 12.76, 12.84)
Amdt. 1	Adds citations to prior code §§ 24-1-129, 27-1-10 and 27-1-11 to § 4 and amends portion [§ 27-1-35] of § 2 of Ord. 90-1255, vehicles and traffic (5.32, 12.08, 12.20, 12.32, 12.64, 12.84)
Amdt. 2	Repeals and replaces amendatory language of §§ 1—4 of Ord. 90-1255, vehicles and traffic (5.32, 12.08, 12.12, 12.16, 12.20, 12.24, 12.28, 12.32, 12.36, 12.52, 12.64, 12.68, 12.76, 12.84)
90-1256	Adds § 104.13(c) and amends §§ 104.11 of prior code Appx. A, zoning (Repealed by 96-555)
Amdt. 1	Amends preamble of Ord. 90-1256 and repeals and replaces § 1(2) [§ 104.11] and portion of § 1 dealing with 104.13(c)(5), zoning (Repealed by 96-555)
Amdt. 2	Adds (4) to § 1 to repeal subsection (b)(1)—(6) and add (b)(1)—(7) to § 104.13 of prior code Appx. A and amends § 1(3) [104.13(c)(5)] of Ord. 90-1256, zoning (Repealed by 96-555)
90-1257	(Withdrawn)
90-1258	(Deferred)
90-1259	Rezone (Special)
90-1260	(Withdrawn)
90-1261	Rezone (Special)
90-1262	(Withdrawn)
90-1263	(Failed)
90-1264	Amends zoning map (Special)
90-1265	Amends zoning map (Special)
90-1266	Rezone (Special)
90-1267	Rezone (Special)
90-1268	Rezone (Special)
90-1269	(Deferred)
90-1270	Adds § 13.10(b)(15) and renumbers following subsections and adds §§ 13.21(r), (t) and 103.325; amends §§ 22.20, 24.22(b), 24.63(c), A22.10, 32.10, 35.113(a), 35.521(a), 42.10, 44.112(b), 44.531(a), 83-30 and 103.316; and repeals §§ 13.51(b)(2) of prior code Appx. A, zoning (Repealed by 96-555)
Amdt. 1	Repeals and replaces § 1(4) [§ 13.51 of prior code Appx. A] and deletes subsection (18)(e) of § 1 of Ord. 90-1270, zoning (Repealed by 96-555)
90-1271	Rezone (Special)
90-1272	Amends zoning map (Special)
90-1273	Repeals and replaces prior code § 17-1-1 and repeals §§ 17-1-10—17-1-17, 1987 Fire Prevention Code adopted with amendments (Repealed by 94-1245)

Ordinance Number	Disposition
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 90-1273, Fire Prevention Code (Repealed by 94-1245)
90-1274	(Withdrawn)
90-1275	Animal noise restrictions (8.12)
Amdt. 1	Deletes § 1 and renumbers §§ 2—4 to be §§ 1—3 of Ord. 90-1275, animal noise restrictions (8.12)
90-1276	Contract for sheriff's department services (Special)
90-1277	Approves contract with the Emergency Communications District (Special)
90-1278	Acquisition of certain property (Special)
Amdt. 1	Deletes and replaces reference to certain property in §§ 1 and 2 of Ord. 90-1278 (Special)
90-1279	Approves contract with National Council on the Aging for funding of certain programs (Special)
90-1280	Approves contract for performance and funding of surveys of historical property (Special)
90-1281	Approves intergovernmental service agreement for housing of federal prisoners (Special)
90-1282	Authorizes construction of certain communications and data lines (Special)
90-1283	Authorizes landfill gas development agreement for Bordeaux Landfill (Special)
90-1284	Repayment procedure for community development block grant funds authorized by Ord. 89-882 (Special)
Amdt. 1	Adds § 1.5 to Ord. 90-1284, number of housing units created (Special)
90-1285	(Withdrawn)
90-1286	Approves water main installation projects (Special)
90-1287	Amends Ord. 88-242, costs for certain water and sewer extension project (Special)
90-1288	Acquisition of certain property (Special)
90-1289	(Failed)
90-1290	Approves amendment to grant contract for transfer of certain property including correctional facilities (Special)
90-1291	Sale of certain surplus property (Special)
90-1292	Rezone (Special)
90-1293	Rezone (Special)
90-1294	Encroachments on sidewalks and rights-of-way (Deferred)
90-1295	Permits for signs, banners and other encroachments over public ways (13.16)
90-1296	(Deferred)
90-1297	Acquisition of certain property (Special)
90-1298	Criminal or drug-related activity by public housing tenants (11.16)
Amdt. 1	Deletes and replaces portion of § 1 of Ord. 90-1298, activities of public housing tenants (11.16)
Amdt. 2	Deletes Amdt. 1 to Ord. 90-1298, activities of public housing tenants (11.16)
90-1299	Approves grant of state highway safety program funds (Special)
90-1300	Approves grant of state highway safety program funds (Special)
90-1301	Approves grant of state highway safety program funds (Special)
90-1302	Amendment to contract for maternal and infant care project (Special)
90-1303	Approves 1989-90 addendum to agreement for certain medical services (Special)
90-1304	Sale of certain surplus property (Special)
90-1305	Street name change (Special)
90-1306	Rezone (Special)
Amdt. 1	Deletes CG designation in Ord. 90-1306 and adds CS (Special)
90-1307	(Failed)
90-1308	Rezone (Special)
90-1309	Rezone (Special)
90-1310	Rezone (Special)
90-1311	Amends zoning map (Special)
90-1312	(Deferred)
90-1313	Rezone (Special)
Amdt. 1	Replaces attachment to Ord. 90-1313 (Special)
90-1314	Amends zoning map (Special)
90-1315	Rezone (Special)
90-1316	(Withdrawn)
90-1317	Approves contract for rehabilitation program for domestic violence-related offenders (Special)
90-1318	Amends prior code § 36-3-15(b), distribution of dump fee moneys (Repealed by 90-1318 Amdt. 2)
Amdt. 1	Amends Ord. 90-1318 by changing references to "36-3-15(b)" to "36-2-15(b)," distribution of dump fee moneys (Repealed by 90-1318 Amdt. 2)
Amdt. 2	Repeals and replaces portion of § 1 [36-2-15(b)] of Ord. 90-1318, distribution of dump fee moneys (Repealed by 93-821)
90-1319	Approves contract for public library system services (Special)
90-1320	Approves contract for reappraisal and equalization of assessments (Special)
90-1321	Approves lease of certain premises (Special)

Ordinance Number	Disposition
90-1322	Approves 1990-91 contract with the Emergency Communications District (Special)
90-1323	Agreement with Nashville Gas Company, gas transportation service (Special)
90-1324	Approves amendment to certain property lease agreement (Special)
90-1325	Sale of certain surplus property (Special)
90-1326	Accepts conveyance of certain right-of-way (Special)
90-1327	(Deferred)
90-1328	Vacates portion of Basin Street and certain alley (Special)
90-1329	Acquisition of certain property (Special)
90-1330	Acquisition of certain property (Special)
90-1331	Acquisition of certain property (Special)
90-1332	Rezone (Special)
90-1333	Rezone (Special)
90-1334	Rezone (Special)
90-1335	Rezone (Special)
90-1336	Rezone (Special)
90-1337	(Withdrawn)
90-1338	Vacates portion of Flushing Drive (Special)
90-1339	Adds new § 2-1-8.1; moves §§ 5-1-24—5-1-31 from Subch. I to new subdiv. at end of Div. II Art. I Subch. II and moves §§ 5-1-32—5-1-33 from Subch. I to Art. II Subdiv. I Subch. II; amends §§ 1-1-7, 2-1-19, 2-1-37, 2-1-72, 2-1-100.1, 5-1-16, 5-1-23.2(a), 5-1-24, 5-1-34(b), 5-2-1—5-2-3, 5-2-5, 5-2-37, 5-2-39, 5-2-42, 5-2-44, 5-2-45, 5-2-48, 5-2-49, 12-1-21, 15-1-28, 15-1-31.1, 15-1-39, 15-1-41, 15-1-42, 15-1-52(b), 20-1-20(d), 20-1-225, 24-1-3, 24-1-7.1(c), 24-1-124(b), 24-1-127(a), 24-1-134, 24-1-135(a), 24-1-138, 24-2-16.1, 24-2-17, 24-2-25, 24-2-28, 27-1-15(e), 27-1-100, 27-1-106(a) and (b), 27-1-144, 29-1-41.2, 29-1-42.1, 29-1-63, 30A-1-29, 34-2-3, 34-2-3, 34-2-6, 34-2-7, 36-1-3, 36-1-12, 36-1-13, 39-1-69(1) and 41-2-1—41-2-3; repeals and replaces §§ 5-1-18.2, 5-2-38, 5-2-40, 5-2-43, 15-1-40, 27-1-31, 27-1-60(c)(2), 29-1-2, 29-1-16, 29-1-23, 29-1-58 and 38-1-28; repeals entirety of Ch. 18 and §§ 2-1-3, 2-1-16—2-1-18, 2-1-3.3, 2-1-3.5(b), 2-1-15.1, 2-1-21—2-1-23, 2-1-45, 2-1-101.15—2-1-101.20, 5-2-5(c), (f) and (g), 5-2-8—5-2-16, 5-2-18—5-2-36, 5-2-41, 5-2-47, 5-2-50—5-2-62, 5-3-2, 5-3-3, 7-2-1, 7-2-2, 13-1-2, 15-1-56, 20-1-43—20-1-74, 20-1-75—20-1-99, 20-1-100—20-1-103, 20-1-104—20-1-117.1, 20-1-118—20-1-131 (and renumbers following sections), 20-1-135—20-1-139 (and renumbers following sections), 21A-1-1—21A-1-12, 24-1-68, 24-1-133, 24-2-1—24-2-16, 24-2-17, 27-1-167, 27-1-168, 27-1-210—27-1-219, 29-1-4.1, 29-1-15(f) (and reletters following subsections), 29-1-32, 29-1-32.1, 29-1-43—29-1-45, 29-1-45.1—29-1-45.4, 29-1-45.5, 29-1-63, 29-1-67, 36-1-14 (and renumbers following sections), 36-1-15 (and renumbers following sections) and 36-1-21 (and renumbers following sections), all pertaining to updating prior code provisions during 1991 recodification (1.20, 2.32, 2.40, 2.56, 2.60, 2.128, 5.04, 5.08, 5.12, 5.16, 5.28, 5.32, 5.36, 6.36, 7.12, 7.16, 7.24, 10.16, 10.24, 11.04, 11.08, 11.12, 11.24, 11.28, 11.36, 12.08, 12.12, 12.16, 12.20, 12.40, 13.04, 13.24)
90-1340	Authorizes certain encroachments on public right-of-way (Special)
90-1341	Approves lease of space for historical commission offices (Special)
90-1342	Water main installation project (Special)

Ordinance Number	Disposition
90-1343	Acquisition of certain property (Special)
90-1344	Authorizes certain sewer project charges (Special)
90-1345	Abandons certain easement (Special)
90-1346	Abandons certain easement (Special)
90-1347	Abandons certain easement (Special)
90-1348	Acquisition of certain property (Special)
Amdt. 1	Corrects reference in Ord. 90-1348 (Special)
90-1349	Approves contract for Bordeaux Landfill project (Repealed by 96-532)
90-1350	Authorizes application for funding certain pollution abatement projects (Special)
90-1351	Approves grant for victim intervention program (Special)
90-1352	(Deferred)
90-1353	Sale of certain surplus property (Special)
90-1354	Rezone (Special)
90-1355	Abandons certain easement (Special)
90-1356	Rezones (Special)
Amdt. 1	Amends portions of Ord. 90-1356 (Special)
90-1357	Rezones (Special)
Amdt. 1	Amends portions of Ord. 90-1357 (Special)
90-1358	Rezones (Special)
Amdt. 1	Amends portions of Ord. 90-1358 (Special)
90-1359	Cancels certain residential planned unit development (Special)
90-1360	Rezone (Special)
90-1361	Rezone (Special)
Amdt. 1	Deletes parcel 234 from Map 83-9 in Ord. 90-1361 (Special)
90-1362	Rezone (Special)
90-1363	Repeals and adds § 52.64 of prior code Appx. A, zoning (Repealed by 96-555)
90-1364	Street name change (Special)
90-1365	Street name change (Special)
90-1366	Street name change (Special)
90-1367	Street name change (Special)
90-1368	Street name change (Special)
90-1369	Street name change (Special)
90-1370	Street name change (Special)
90-1371	Street name change (Special)
90-1372	Street name change (Special)
90-1373	Amends Ord. 89-1050 to change references to Robin Cable Systems, L.P. to Robin Cable Systems, L.P., a Tennessee limited Partnership, CATV franchise (Special)
90-1374	Approves contract concerning water utility relocation project (Special)
90-1375	(Deferred)
90-1376	Abandons certain easements (Special)
90-1377	(Deferred)
90-1378	(Withdrawn)
90-1379	Amends §§ 13.81(b), 32.20, 42.18 and 103.52 of prior code Appx. A, zoning (Repealed by 96-555)
90-1380	Adds §§ 13.21(p), 13.51(e)(14), 103.325 and 104.40(g), amends §§ 13.61(o) and (w), 13.71(a)(1) and (b)(2), 13.71(c), A22.20, 32.20, 42.20, 83.30 and 103.323(h); and repeals and replaces §§ 13.51(e)(3) and (h)(6) of prior code Appx. A, zoning (Repealed by 96-555)
90-1381	Authorizes transfer of franchise granted by Ord. 86-1358 from U.S. Cable Television Group, L.P., to Intermedia Partners of West Tennessee, cable television service (Special)
90-1382	Authorizes transfer of franchise granted by Ord. 86-1359 from U.S. Cable Television Group, L.P., to Intermedia Partners of West Tennessee, cable television service (Special)
90-1383	Adds § 40-1-102.2 to prior code, sewer system capacity availability notice letters (15.36)
90-1384	Approves agreement for water resources investigation program (Special)
90-1385	Classes of water and sewer service customers; repeals and replaces prior code §§ 40-1-136, 40-1-139, 40-1-144, 40-1-145 and 40-1-156, rates for service (15.32, 15.36)
90-1386	Amends § 15-1-18 of prior code, department of finance (Repealed by 92-210)
90-1387	(Withdrawn)
90-1388	Rezone (Special)
90-1389	(Withdrawn)
90-1390	Rezone (Special)
90-1391	Rezone (Special)
90-1392	Amends zoning map (Special)
90-1393	Adds (f) to § 2 and amends § 1(a), (b), (d) of Ord. 90-1107, alarm systems (10.60)
Amdt. 1	Deletes §§ 2—4 and renumbers § 5 to be § 2 of Ord. 90-1393, alarm systems (Not codified)
90-1394	Authorizes receipt of certain sewer line project funds (Special)
90-1395	Acquisition of certain property (Special)
90-1396	(Withdrawn)
90-1397	Approves joint funding agreement for water and sewerage services (Special)
90-1398	Authorizes agreement for rail crossing project (Special)
90-1399	Amends zoning map (Special)
90-1400	Amends zoning map (Special)
90-1401	(Deferred)
90-1402	(Deferred)

Ordinance Number	Disposition
90-1403	Rezone (Special)
90-1404	Amends zoning map (Special)
90-1405	Amends zoning map (Special)
90-1406	Rezone (Special)
90-1407	Amends portions of Ord. 86-1534, appropriations from the general fund reserve fund (5.04)
90-1408	Authorizes contract amendment on transfer of certain airport tax revenues (Special)
90-1409	Authorizes application for certain community development block grant funds (Special)
90-1410	Alley vacation (Special)
90-1411	Sale of certain surplus property (Special)
90-1412	Sale of certain surplus property (Special)
90-1413	Sale of certain surplus property (Special)
90-1414	Sale of certain surplus property (Special)
Amdt. 1	Corrects spelling of a term in §§ 1 and 3 of Ord. 90-1414 (Special)
90-1415	Sale of certain surplus property (Special)
90-1416	Repeals and replaces § 2 of Ord. 88-417, employee suggestion award program (3.60)
Amdt. 1	Repeals and replaces § 2 of Ord. 90-1416, employee suggestion award program (3.60)
90-1417	Approves amendment to operating agreement with Nashville Thermal Transfer Corporation (Repealed by 91-47)
Amdt. 1	Removes and substitutes contract portion of Ord. 90-1417 (Repealed by 91-47)
Amdt. 2	Deletes certain references to increased capacity in first amendment to Ord. 90-1417 operating agreement (Repealed by 91-47)
Amdt. 3	Adds language to § 1 of Ord. 90-1417 (Repealed by 91-47)
Amdt. 4	Adds language to § 1 of Ord. 90-1417 (Repealed by 91-47)
90-1418	Authorizes conveyance of certain easement (Special)
90-1419	Acquisition of certain property (Special)
90-1420	Acquisition of certain property (Special)
90-1421	Acquisition of certain property (Special)
90-1422	Acquisition of certain property (Special)
90-1423	Abandonment of interest in portion of Old Lickton Pike (Special)
90-1424	Authorizes use of funds for ridesharing program (Special)
90-1425	Authorizes contract for litter pickup by workhouse inmates (Special)
90-1426	Creates certain employment position (Special)
90-1427	(Deferred)
90-1428	Creates certain employment positions (Special)
90-1429	(Deferred)
90-1430	(Deferred)
90-1431	Creates certain employment positions (Special)
90-1432	Rezone (Special)
90-1433	Vacates portion of Leslie Avenue (Special)
90-1434	(Deferred)
90-1435	Repeals § 5.1 of Ch. 5 of § 1 of Ord. 90-1339 which repealed prior code § 5-1-18.2, and reenacts § 5-1-18.2, updating prior code provisions (7.08)
90-1436	Sale of certain surplus property (Special)
90-1437	Adds (c) to and reletters (c)—(e) to be (d)—(f) of § 82.33 and repeals and adds § 23.43 of prior code Appx. A, zoning (Repealed by 96-555)
Amdt. 1	Amends portion of Ord. 90-1437 § 1(a), Appx. A, zoning (Repealed by 96-555)
Amdt. 2	Repeals and adds portion of Ord. 90-1437 § 1(a), Appx. A, zoning (Repealed by 96-555)
90-1438	Creates certain employment position (Special)
90-1439	Acquisition of certain property (Special)
90-1440	Agreement concerning sewer system improvements (Special)
90-1441	Renames certain street (Special)
90-1442	Rezone (Special)
Amdt. 1	Deletes CG references in Ord. 90-1442 and inserts CS references in their place (Special)
90-1443	(Withdrawn)
90-1444	Rezone (Special)
90-1445	(Withdrawn)
90-1446	(Withdrawn)
90-1447	Sale of certain surplus property (Special)
Amdt. 1	Changes street name in Ord. 90-1447 (Special)
90-1448	Sale of certain surplus property (Special)
Amdt. 1	Changes street name in Ord. 90-1448 (Special)
90-1449	Authorizes contract for lease of certain services (Special)
90-1450	Approves purchase of certain property for industrial development (Special)
90-1451	(Withdrawn)
90-1452	Amends zoning map (Special)
Amdt. 1	Amends § 1 of Ord. 90-1452 (Special)
90-1453	Amends zoning map (Special)
90-1454	Rezone (Special)
90-1455	(Withdrawn)
90-1456	Amends zoning map (Special)
90-1457	(Withdrawn)
90-1458	(Withdrawn)
90-1459	(Withdrawn)

Ordinance Number	Disposition
90-1460	(Withdrawn)
90-1461	Sale of certain surplus property (Special)
90-1462	Sale of certain surplus property (Special)
90-1463	Sale of certain surplus property (Special)
90-1464	Sale of certain surplus property (Special)
90-1465	Sale of certain surplus property (Special)
90-1466	Sale of certain surplus property (Special)
90-1467	Renames certain street (Special)
91-1468	Vacates certain valley (Special)
91-1469	Adopts Supplement No. 50 dated 7-90 to the Metropolitan Code (Not codified)
91-1470	Approves amendment to amended and restated contract with Tennessee Department of Correction and the State Funding Board (Special)
91-1471	Repeals and adds prior code § 2-1-101.69, planting, pruning and removal of trees and other plantings (Repealed by 93-882)
91-1472	Authorizes contract with State Department of Transportation for road construction (Special)
91-1473	Authorizes receipt of funds for certain sewer system improvements (Special)
91-1474	Officially accepts certain water and sewer facility improvements for 1989-90 (Special)
91-1475	(Withdrawn)
91-1476	Vacates certain alley (Special)
91-1477	Street name changes (Special)
91-1478	Sale of certain surplus property (Special)
91-1479	Sale of certain surplus property (Special)
91-1480	Sale of certain surplus property (Special)
91-1481	Amends §§ 33.281 and 43.31 of prior code Appx. A, zoning (Repealed by 96-555)
Amdt. 1	Amends portions of §§ 1 and 2 of Ord. 91-1481, zoning (Repealed by 96-555)
91-1482	Rezone (Special)
Amdt. 1	Changes portions of Ord. 91-1482 (Special)
Amdt. 2	Adds preamble language to Ord. 91-1482 (Special)
91-1483	(Failed)
91-1484	Lobbyist regulation and disclosure (2.196)
91-1485	(Withdrawn)
91-1486	Sale of certain surplus property (Special)
91-1487	Sale of certain surplus property (Special)
91-1488	Readopts Ord. 77-739 in its entirety and amends § 3 of Ord. 77-739 (Repealed by 94-1117)
Amdt. 1	Amends portion of § 1 of Ord. 91-1448 affecting § 3 of Ord. 77-739 (Repealed by 94-1117)
91-1489	(Withdrawn)
91-1490	(Withdrawn)
91-1491	Condemnation and acquisition of property (Special)
91-1492	Sewer service improvement agreement (Special)
91-1493	Acquisition of property for utility easements (Special)
91-1494	Acquisition of property for utility easements (Special)
91-1495	Acquisition of property for sewer and drainage facilities (Special)
91-1496	Acquisition of property for utility easements (Special)
91-1497	Street name change (Special)
Amdt. 1	Changes street name in Ord. 91-1497 (Special)
91-1498	Names certain street (Special)
91-1499	Adopt-a-street program (2.198)
91-1500	(Withdrawn)
91-1501	Adds language to § 23.43(b) of prior code Appx. A, zoning (Repealed by 96-555)
Amdt. 1	Deletes and adds portion of § 1 of Ord. 91-1501, zoning (Repealed by 96-555)
91-1502	Vacates certain alleys (Special)
91-1503	Rezone (Special)
Amdt. 1	Deletes CG and adds CS designation to Ord. 91-1503 (Special)
91-1504	Amends zoning map (Special)
91-1505	Amends zoning map (Special)
91-1506	Rezone (Special)
Amdt. 1	Adds language on Parcel 32 to Ord. 91-1506 (Special)
91-1507	Amends zoning map (Special)
91-1508	Amends prior code Appx. A §§ 32.10, 32.20, 35.113 and 103.313 (c), (g) and (h), zoning (Repealed by 96-555)
91-1509	Rezone (Special)
Amdt. 1	Adds language on Parcel 95 to Ord. 91-1509 (Special)
91-1510	Rezone (Special)
91-1511	Sale of certain surplus property (Special)
91-1512	Sale of certain surplus property (Special)
91-1513	Sale of certain surplus property (Special)
91-1514	Abandons certain easements (Special)
91-1515	Abandons certain easements (Special)
91-1516	Adds (d)—(i) to prior code § 36-1-44, solid waste collection and disposal (10.20)
91-1517	(Withdrawn)
91-1518	(Failed)
91-1519	(Withdrawn)
91-1520	Approves Amdt. 2 to Rutledge Hill Redevelopment Plan (Special)
91-1521	Approves contract for highway improvements (Special)

Ordinance Number	Disposition
91-1522	Approves Amdt. 1 to Five Points Redevelopment Plan (Special)
Amdt. 1	Amends portion of Ord. 91-1522 (Special)
Amdt. 2	Amends portion of Ord. 91-1522 (Special)
91-1523	Repeals and replaces Ord. 90-1107, alarm systems (10.60)
91-1524	Lease agreement procedures for billboards and advertising signs (2.24)
Amdt. 1	Amends portion of §§ 1 and 2 of Ord. 91-1524, billboards (2.24)
91-1525	Amends prior code §§ 11-1-25, 11-1-42 (a) and (g) and 11-1-43; repeals and replaces §§ 11-1-42 (d), (e) and 11-1-44.1 (b), building code and building permits (16.28)
91-1526	Amends prior code §§ 14-1-27, 14-1-39, 14-1-40 and 14-1-53, electrical code inspection fees (2.76, 16.20)
91-1527	Amends prior code §§ 19-1-31, 19-1-62 and 19-1-68, gas/mechanical permit fees (2.84, 16.16)
91-1528	Amends prior code § 22-1-42, housing inspection fees (Repealed by BL2001-585)
91-1529	Amends prior code §§ 33-1-26 and 33-1-39 and repeals and replaces § 33-1-38, plumbing permit fees (2.92, 16.12)
91-1530	Repeals and replaces § 101.26 of prior code Appx. A, zoning (Repealed by 96-555)
91-1531	Street name change (Special)
91-1532	Abandons certain public utility easements (Special)
Amdt. 1	Adds new § 4 to Ord. 91-1532 and renumbers § 4 to be § 5 (Special)
91-1533	Acquisition of property for utility facilities (Special)
91-1534	Authorizes participation in contract with state for certain utility project (Special)
91-1535	(Withdrawn)
91-1536	Abandons portion of certain alley (Special)
91-1537	Closes certain alley (Special)
91-1538	Vacates certain road (Special)
91-1539	Sale of certain surplus property (Special)
91-1540	Sale of certain surplus property (Special)
91-1541	Sale of certain surplus property (Special)
91-1542	Sale of certain surplus property (Special)
91-1543	Sale of certain surplus property (Special)
91-1544	Sale of certain surplus property (Special)
91-1545	Sale of certain surplus property (Special)
91-1546	Rezone (Special)
Amdt. 1	Changes references in Ord. 91-1546 from R-10 to RS10 district (Special)
91-1547	(Withdrawn)
91-1548	Amends zoning map (Special)
91-1549	Acquisition of property for utility facilities (Special)
91-1550	Acquisition of property for sewer and drainage facilities (Special)
91-1551	Street name change (Special)
91-1552	Adds language to prior code § 5-1-8.2 (a), beer and alcoholic beverage sales (7.08)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 81-1552, beer and alcoholic beverage sales (7.08)
91-1553	Sale of certain surplus property (Special)
Amdt. 1	Adds language to § 2 of Ord. 91-1553 (Special)
91-1554	(Withdrawn)
91-1555	Rezone (Special)
91-1556	Rezone (Special)
91-1557	Street name change (Special)
91-1558	Adds §§ 14-1-16 (h), 14-1-32 (c), 14-1-35.1, 14-1-62.1, 14-1-84—14-1-94 and 14-1-95, amends §§ 14-1-16 (f), 14-1-16, 14-1-22 (d), 14-1-24, 14-1-28, 14-1-30, 14-1-32 (a), 14-1-39 (1), 14-1-66, 14-1-73 and 14-1-76; renumbers § 14-1-16 (h) to be (i); repeals and adds §§ 14-1-22 (a), 14-1-31, 14-1-39 (10), 14-1-57, 14-1-60—14-1-62, 14-1-63—14-1-65, 14-1-67—14-1-75, 14-1-81 and 14-1-83; and repeals §§ 14-1-78 and 14-1-82, electrical contractors and electrical equipment (2.76, 6.20, 16.20)
91-1559	Repeals and replaces prior code § 2-1-75, metropolitan action commission (2.108)
91-1560	Adds § 30A-1-20 (f) to prior code, Riverfront Park regulations (13.24)
Amdt. 1	Repeals and replaces last sentence of prior code § 30A-1-20 (f)(2) as set out in § 1 of Ord. 91-1560, Riverfront Park regulations (13.24)
Amdt. 2	Amends prior code § 30A-1-20 (f) as set out in § 1 of Ord. 91-1560, Riverfront Park regulations (13.24)
91-1561	(Withdrawn)
91-1562	Changes classification of certain employment position (Special)
91-1563	Approves certain cooperative agreements with U.S. Department of the Interior Geological Survey concerning stormwater runoff quality determination (Special)
91-1564	Authorizes acceptance of certain right-of-way project proposal (Special)
91-1565	Amends zoning map (Special)
91-1566	(Withdrawn)
91-1567	Approves Amdt. 2 to Capitol Mall Redevelopment Project (Special)
91-1568	(Withdrawn)
91-1569	(Withdrawn)

Ordinance Number	Disposition
91-1570	Repeals and replaces § 13.21(o) of prior code Appx. A, zoning (Repealed by 96-555)
91-1571	(Withdrawn)
91-1572	Adopts official property identification maps as of 1/1/91 (Not codified)
91-1573	Abandons portion of certain easement (Special)
91-1574	Acquisition of property for utility easements (Special)
91-1575	Approves agreement for stormwater service charge financial feasibility analysis (Special)
91-1576	Rezone (Special)
91-1577	(Failed)
91-1578	Rezone (Special)
91-1579	Amends zoning map (Special)
91-1580	(Withdrawn)
91-1581	Amends zoning map (Special)
91-1582	(Withdrawn)
91-1583	Amends prior code § 14-1-39 (15), electrical fees (16.20)
91-1584	Approves location and construction of new juvenile court and detention center (Special)
91-1585	Vacates portion of certain alley (Special)
91-1586	Sale of certain surplus property (Special)
91-1587	Audit procedures and director of finance authority under Charter § 8.103 (2.24)
91-1588	(Withdrawn)
91-1589	Authorizes contract for certain public improvements (Special)
91-1590	Authorizes contract for promotion of tourism and convention business (Special)
91-1591	Adopts The Code of the Metropolitan Government of Nashville and Davidson County, Tennessee, as supplemented through Supp. No. 51, 10-90 (Not codified)
91-1592	Sale of certain surplus property (Special)
91-1593	Sale of certain surplus property (Special)
91-1594	Sale of certain surplus property (Special)
91-1595	Sale of certain surplus property (Special)
91-1596	Sale of certain surplus property (Special)
91-1597	Sale of certain surplus property (Special)
91-1598	Sale of certain surplus property (Special)
91-1599	Abandons certain easement (Special)
91-1600	(Failed)
91-1601	Abandons certain easement (Special)
91-1602	Abandons certain sewer easements (Special)
91-1603	Amends prior code § 36-2-15 (a) and repeals and replaces § 36-2-15 (f), disposal of construction or demolition waste (10.20)
91-1604	Leaves, wood waste and composting program (10.20)
91-1605	(Withdrawn)
91-1606	Vacates certain alley (Special)
91-1607	Street name change (Special)
91-1608	Street name change (Special)
91-1609	Street name change (Special)
91-1610	Vacates certain easement (Special)
91-1611	Vacates certain easements (Special)
91-1612	(Withdrawn)
91-1613	(Failed)
91-1614	Extends and redefines boundaries of Jefferson Street Commercial District (Special)
91-1615	Adopts capital improvements budget and program for 1991-92 through 1996-97 (Special)
Amdt. 1	Adds language to Ord. 91-1615, projects for 1991-92 (Special)
Amdt. 2	Adds language to Ord. 91-1615, projects for 1991-92 (Special)
Amdt. 3	Adds language to Ord. 91-1615, projects for 1991-92 (Special)
Amdt. 4	Adds language to Ord. 91-1615, projects for 1991-92 (Special)
Amdt. 5	Adds language to Ord. 91-1615, projects for 1991-92 (Special)
Amdt. 6	Adds language to Ord. 91-1615, projects for 1991-92 (Special)
Amdt. 7	Adds language to Ord. 91-1615, projects for 1991-92 (Special)
Amdt. 8	Adds language to Ord. 91-1615, projects for 1991-92 (Special)
Amdt. 9	Adds language to Ord. 91-1615, projects for 1991-92 (Special)
Amdt. 10	Amends project descriptions in Ord. 91-1615 (Special)
Amdt. 11	Adds language to Ord. 91-1615, projects for 1991-92 (Special)
91-1616	Probation supervision fee (2.56)
91-1617	Sale of certain surplus property (Special)
91-1618	Abandons portion of certain avenue (Special)
91-1619	Abandons portion of certain alley (Special)
91-1620	Street name change (Special)
91-1621	Street name changes (Special)
Amdt. 1	Repeals §§ 2 and 3 of Ord. 91-1621 and renumbers them to be §§ 4 and 5 (Special)
91-1622	Street name changes (Special)
91-1623	Street name change (Special)
91-1624	Repeals and replaces prior code § 27-1-166, permits for curb loading zones (12.48)
Amdt. 1	Repeals § 27-1-166(d) and reletters following subsections, as set out in Ord. 91-1624, curb loading zone permits (12.48)

Ordinance Number	Disposition
91-1625	Acquisition of property from Rayon City Water Company, Inc. (Special)
91-1626	(Withdrawn)
91-1627	Budget ordinance for 1991-92 (Special)
91-1628	Tax levy for 1991-92 (Special)
91-1629	Amends Ord. 72-430, right to use Church Street Viaduct (Special)
91-1620	Street name change (Special)
91-1631	(Withdrawn)
91-1632	Approves Amdt. 4 to contract with Tennessee Department of Health and Environment (Special)
91-1633	Acquisition of property for utility easements (Special)
91-1634	Authorizes certain agreement for staffing and administration for the metropolitan noise mitigation program (Special)
91-1635	Rezone (Special)
91-1636	Rezone (Special)
91-1637	(Withdrawn)
91-1638	Amends § 102.30 of prior code Appx. A, zoning (Repealed by 96-555)
91-1639	Rezone (Special)
Amdt. 1	Repeals and replaces second paragraph of § 1 of Ord. 91-1639 (Special)
91-1640	Rezone (Special)
Amdt. 1	Deletes references to R15 and adds RS15 in their place in Ord. 91-1640 (Special)
91-1641	(Withdrawn)
91-1642	Rezone (Special)
91-1643	Rezone (Special)
91-1644	Adds § 85.34 to prior code Appx. A, zoning (Repealed by 96-555)
91-1645	Amends portion of § 13.71 of prior code Appx. A, zoning (Repealed by 96-555)
91-1646	(Withdrawn)
91-1647	Amends subsection (b) and repeals and adds (a) of prior code § 34-1-4.1, police department (2.44)
91-1648	Repeals and replaces prior code § 34-1-4.2, police department service fees (2.44)
91-1649	Amends prior code § 37-1-3, solicitation permits (Repealed by 96-527)
91-1650	Repeals and replaces § 39-1-55(c)(3)(e), Metro tow-in lot storage fees (Repealed by 92-269)
91-1651	Repeals and adds portion of prior code § 36-1-15(b), dump fee for construction and demolition wastes (10.20)
91-1652	Adds language to § 1 of Ord. 87-1890, permits for aerial cables and other structures over public ways (13.16)
91-1653	Vacates certain alley (Special)
Amdt. 1	Amends portion of § 1 of Ord. 91-1653 (Special)
91-1654	Amends zoning map (Special)
Amdt. 1	Adds § 3 to Ord. 81-1654 (Special)
Amdt. 2	Amends Ord. 91-1654 (Special)
91-1655	(Failed)
91-1656	Approves contract with National Council on Aging for grant of federal funds (Special)
91-1657	Authorizes receipt of certain funds for sewer system improvements (Special)
91-1658	Acquisition of property for utility easements (Special)
91-1659	Approves contract with South Central Bell for telecommunications services; supersedes contract in Ord. 89-912 (Special)
91-1660	Approves lease of certain property (Special)
91-1661	Approves 1991-92 contract with the Emergency Communications District (Special)
91-1662	Approves amendments to Official Street and Alley Acceptance and Maintenance Map (Special)
91-1663	(Withdrawn)
91-1664	Abandons certain public utility easements (Special)
Amdt. 1	Amends § 1 of Ord. 91-1664 (Special)
Amdt. 2	Repeals and replaces § 1 of Ord. 91-1664 (Special)
91-1665	Abandons portion of certain street (Special)
91-1666	Amends portion of Official Street and Alley Acceptance and Maintenance Map (Special)
91-1667	(Withdrawn)
91-1668	(Withdrawn)
91-1669	Amends prior code §§ 24-1-116, 24-1-117, 24-1-122 and 24-1-125, vehicle taxes (5.32)
91-1670	Acquisition of property for utility easements (Special)
91-1671	Amends contract for funding and operation of joint program entitled "MAGIC" for computer mapping (Repealed by 94-1087)
91-1672	Accepts certain property licensing agreement (Special)
91-1673	(Withdrawn)
91-1674	Abandons portion of certain avenue (Special)
91-1675	Abandons certain public utility easements (Special)
91-1676	Abandons portion of certain alley (Special)
91-1677	Vacates certain alley (Special)
91-1678	Vacates certain alley (Special)
91-1679	(Withdrawn)

Ordinance Number	Disposition
91-1680	Adopts The Code of the Metropolitan Government of Nashville and Davidson County, Tennessee, as prepared by Book Publishing Company, to be effective as of 9/1/91, as sets penalty for code violations (1.01)
Amdt. 1	Amends § 3 of Ord. 91-1680, code adoption (1.01)
Amdt. 2	Adds language to § 3 of Ord. 91-1680, code adoption (1.01)
Amdt. 3	Adds language to § 1 of Ord. 91-1680, code adoption (1.01)
91-1681	(Withdrawn)
91-1682	Repeals and replaces prior code § 32-1-47(a), disability pensions and survivors' benefits (3.28)
91-1683	Firefighters and health impairment in the line of duty (2.28)
91-1684	(Withdrawn)
91-1685	Acquisition of property for street widening (Special)
91-1686	Acquisition of property for street improvement purposes (Special)
91-1687	Acquisition of property for road and bridge construction (Special)
91-1688	Approves receipt of state fund grant and matching funds for certain support of substance abuse programs (Special)
91-1689	Names certain street (Special)
91-1690	Street name change (Special)
Amdt. 1	Deletes and replaces sketch map for Ord. 91-1690 (Special)
91-1691	Names certain street (Special)
Amdt. 1	Deletes and replaces sketch map for Ord. 91-1691 (Special)
91-1692	Approves grant of certain easement (Special)
91-1693	Authorizes conveyance of certain easement (Special)
91-1694	Acquisition of property for fire hall construction (Special)
91-1695	Approves certain lease agreement (Special)
91-1	Transfer of certain funds (Special)
Amdt. 1	Replaces § 1 of Ord. 91-1, transfer of funds (Special)
91-2	Amends § 7.08.170 (M), hours of delivery by wholesalers and manufacturers (7.08)
Amdt. 1	Amends § 1 of Ord. 91-2, hours of delivery (7.08)
91-3	Approves grant from state for victim intervention program and matching funds (Special)
91-4	Accepts certain newly constructed water and sewer facilities (Special)
91-5	Authorizes development of sewer facilities (Special)
91-6	Abandons easement for water tank (Special)
91-7	Adds § 2.64.060, board membership (Defeated)
Amdt. 1	Amends caption of Ord. 91-7 (Defeated)
91-8	Lease agreement (Special)
91-9	Assistance program for low-income elderly residents (5.20)
91-10	Acquisition of property for intersection improvements (Special)
91-11	Authorizes contract with state for public library system (Special)
91-12	Authorizes contract with state for public library system (Special)
91-13	Greenway commission (2.154)
Amdt. 1	Adds language to § 3 of Ord. 91-13, greenway commission (2.154)
91-14	(Withdrawn)
91-15	Acquisition of property for intersection improvements (Special)
91-16	Acquisition of property for fire hall (Special)
91-17	(Withdrawn)
91-18	Amends portion of Official Street and Alley Acceptance and Maintenance Map (Special)
91-19	(Withdrawn)
91-20	Abandons portion of roadway (Special)
91-21	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-21 (Special)
91-22	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-22 (Special)
91-23	Amends zoning map (Special)
91-24	(Withdrawn)
91-25	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-25 (Special)
91-26	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-26 (Special)
91-27	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-27 (Special)
91-28	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-28 (Special)
Amdt. 2	Repeals and replaces portion of § 1 of Ord. 91-28 (Special)
91-29	Amends zoning map (Special)

Ordinance Number	Disposition
Amdt. 1	Amends caption and § 1 of Ord. 91-29 (Special)
Amdt. 2	Amends caption and § 1 of Ord. 91-29 (Special)
91-30	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-30 (Special)
91-31	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-31 (Special)
91-32	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-32 (Special)
91-33	Amends zoning map (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-33 (Special)
91-34	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-34 (Special)
91-35	Amends zoning map (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-35 (Special)
91-36	(Withdrawn)
91-37	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-37 (Special)
91-38	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-38 (Special)
91-39	Approves contract for general sessions court (Special)
91-40	Acquisition of property for utility facilities (Special)
91-41	Acquisition of property for utility facilities (Special)
91-42	Amends zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. 91-42 (Special)
91-43	Vacates Love Avenue (Special)
Amdt. 1	Adds language to § 4 of Ord. 91-43 (Special)
91-44	Adds new section to Ch. 10.20, chipper service for yard waste (10.20)
Amdt. 1	Adds language to paragraph A of new section added by Ord. 91-44, chipper service for yard waste (10.20)
91-45	Conveyance of property (Special)
Amdt. 1	Deletes and replaces Exhibit 1 of Ord. 91-45 (Special)
91-46	Authorizes application for certain federal housing funds (Special)
91-47	Repeals Ord. 90-1417 (Repealer)
Amdt. 1	Adds new § 2 to Ord. 90-1417 and renumbers § 2 to be § 3 (Repealer)
91-48	Advisory committee for Jefferson Street commercial revitalization project (Not codified)
91-49	(Withdrawn)
91-50	Lease agreement for Middle Tennessee Mental Health Institute (Special)
Amdt. 1	Amends lease agreement Exhibit A of Ord. 91-50 (Special)
91-51	(Failed)
91-52	Participation in water system improvement project (Special)
91-53	(Withdrawn)
91-54	Approves lease for certain premises (Special)
91-55	Approves state grant and matching funds for transportation planning (Special)
91-56	Approves contract for water and sewer improvements (Special)
91-57	Authorizes contract with state for work performed by Metropolitan Workhouse inmates (Special)
91-58	Approves driveway easement (Special)
91-59	(Withdrawn)
91-60	Rezone (Special)
Amdt. 1	Repeals and replaces portion of § 1 of Ord. 91-60 (Special)
91-61	(Withdrawn)
91-62	Accepts grant from State Department of Human Services (Special)
91-63	Authorizes certain utility contract adjustment (Special)
91-64	Acquisition of property for utility easements (Special)
91-65	Authorizes application for loan for certain public works projects (Special)
91-66	Acquisition of property for utility easements (Special)
91-67	Accepts grant for park and recreation purposes (Special)
91-68	Abandons certain sewer easement (Special)
91-69	Approves lease agreement with Metropolitan Development and Housing Agency (Special)
91-70	Accepts grant from State Division of Forestry (Special)
91-71	Amends § 1 of Ord. 87-1680, sewer rates (Not codified)
91-72	Rezone (Special)
91-73	Rezone (Special)
91-74	Street name change (Special)
91-75	Street name change (Special)
91-76	Names new road (Special)
91-77	Street name change (Special)
91-78	Street name change (Special)

Ordinance Number	Disposition
91-79	Vacates certain alley (Special)
91-80	(Defeated)
91-81	Amends §§ 17.60.020(C)(10), 17.72.100 (A) and 17.72.220, zoning (Repealed by 96-555)
91-82	(Withdrawn)
91-83	(Withdrawn)
91-84	Adds (A)(6) to § 2.140.040, public records commission (Repealed by 97-845)
91-85	(Withdrawn)
91-86	Creates certain positions for the department of police (Not codified)
91-87	Names certain fire station in honor of Captain Fred Ewing (Special)
91-88	Adds language to § 2.180.030, small minority business development contracts (Repealed by 92-210)
Amdt. 1	Amends § 1 of Ord. 91-88, small minority business development contracts (Repealed by 92-210)
91-89	Acquisition of property for landfill cap (Special)
91-90	Rezone (Special)
91-91	Amends zoning map (Special)
91-92	Rezone (Special)
91-93	(Failed)
91-94	Vacates certain alley (Special)
91-95	Vacates portion of Elm Hill Pike (Special)
91-96	Amends zoning map (Special)
91-97	Transfers control of the ADAPT Program to probate court (2.56)
91-98	(Defeated)
91-99	Amends § (C)(2)(c)(12) and (b)(5) of University Center urban renewal plan (Not codified)
Amdt. 1	Adds language to preamble of Ord. 91-99 (Not codified)
Amdt. 2	Repeals and replaces § 1 of Ord. 91-99 (Not codified)
91-100	Amends § 2.28.030(A), emergency ambulance service advisory committee (2.28)
91-101	Street name change (Special)
91-102	Street name change (Special)
91-103	Names new road (Special)
91-104	Street name change (Special)
91-105	Approves sale of certain property (Special)
91-106	Authorizes sale of certain property (Special)
91-107	Approves sale of certain property (Special)
91-108	Approves sale of certain property (Special)
91-109	Approves sale of certain property (Special)
91-110	(Withdrawn)
91-111	Approves sale of certain property (Special)
91-112	Approves sale of certain property (Special)
91-113	Approves sale of certain property (Special)
91-114	Repeals and replaces § 13.08.040; repeals § 13.32.090, streets, alleys and sidewalks (Repealed by 98-1191)
91-115	Approves State Department of Transportation grant for highway safety program (Special)
91-116	Readopts The Code of the Metropolitan Government of Nashville and Davidson County, Tennessee, including supplement pages dated 10-91 (1.01)
91-117	(Failed)
92-118	Adds §§ 16.08.012 and 16.08.014; amends §§ 16.12.130, 16.12.220, 16.16.240(Q), 16.16.260, 16.16.400 (B)(2) and (C), 16.16.760(A), 16.28.110(A) and 16.28.120; repeals and replaces §§ 16.08.010(A), 16.12.120, 16.16.190(B) and (D), 16.16.230(B) and 16.16.240(P); renumbers § 16.16.220(B) to be § 16.20.150(L); repeals §§ 16.08.010(D), 16.12.140, 16.28.110(B) and 16.32.030(D) and (E), technical building regulations (16.08, 16.12, 16.16, 16.20, 16.28, 16.32)
92-119	Adds § 2.76.090(C), board of electrical examiners, and repeals and replaces § 2.88.040, board of housing code appeals (2.76)
92-120	Approves lease for United Neighborhood Health Services (Special)
92-121	Acquisition of property for utility easements (Special)
92-122	Accepts certain facilities into public water and sewerage system (Special)
92-123	Approves agreement for installation of a historical marker (Special)
92-124	Approves contract for installation of a historical marker (Special)
92-125	Authorizes first amendment to contract with city of Millersville (Special)
92-126	Sale of certain property (Special)
92-127	Sale of certain property (Special)
92-128	Sale of certain property (Special)
92-129	Sale of certain property (Special)
92-130	Sale of certain property (Special)
Amdt. 1	Corrects street name in Ord. 92-130 (Special)
92-131	Sale of certain property (Special)
92-132	Sale of certain property (Special)
92-133	Sale of certain property (Special)
92-134	Sale of certain property (Special)
92-135	Sale of certain property (Special)
92-136	Sale of certain property (Special)
92-137	(Withdrawn)

Ordinance Number	Disposition
92-138	Approves lease agreement (Special)
92-139	Adds (A)(4) to and repeals and replaces (C) of § 17.108.215, zoning (Repealed by 96-555)
Amdt. 1	Repeals and replaces § (A)(4) in § 1 of Ord. 92-139, zoning (Repealed by 96-555)
92-140	Renames certain street (Special)
92-141	Street name changes (Special)
92-142	Amends zoning map (Special)
92-143	Approves grant of license for use of certain property (Special)
92-144	Street name change (Special)
92-145	Vacates portion of certain public ways (Special)
92-146	Creates right-of-way and utility easement (Special)
92-147	Quitclaim deed for certain property (Special)
92-148	Accepts state grant to fund a DUI school for county probate court (Not codified)
92-149	Approves state grant pertaining to highway safety program (Special)
92-150	Personal service contract for medical services (Special)
92-151	Acquisition of property for utility easements (Special)
92-152	(Withdrawn)
92-153	Amends § 1(f) of Ord. 91-13, greenway commission (Repealed by 93-787)
92-154	Low-rent housing development approved (Special)
Amdt. 1	Amends Exhibit A of Ord. 92-154 (Special)
Amdt. 2	Amends Exhibit A of Ord. 92-154 (Special)
Amdt. 3	Amends Exhibit A of Ord. 92-154 (Special)
Amdt. 4	Amends Exhibit A of Ord. 92-154 (Special)
Amdt. 5	Amends Exhibit A of Ord. 92-154 (Special)
92-155	(Withdrawn)
92-156	(Deferred)
92-157	(Deferred)
92-158	(Withdrawn)
92-159	Adds §§ 3.36.020(D) and 3.40.030 (B)(5); amends §§ 3.08.010, 3.08.050, 3.08.070, 3.16.010(A), 3.16.020 (intro) and (B), 3.20.030(B) and (E), 3.24.010(A), 3.24.020(E), 3.28.050(C), 3.28.060(C), 3.36.010 and 3.40.020(A); repeals §§ 3.08.090, 3.12.010(B), (C) and portion of (D) and 3.12.020(B), all pertaining to the employee benefit system (3.08, 3.12, 3.16, 3.20, 3.24, 3.28, 3.36, 3.40)
Amdt. 1	Amends §§ 7 and 9 and deletes §§ 5, 6 and 22 of Ord. 92-159, employee benefit system (3.08)
Amdt. 2	Deletes § 3 of Amdt. 1 to Ord. 92-159 and adds new language to § 7 of Ord. 92-159, employee benefit system (3.08)
92-160	(Withdrawn)
92-161	Street vacation (Special)
92-162	Grants easement to South Central Bell Telephone Company (Special)
92-163	Authorizes HOME Investment Partnership Agreement with U.S. Department of Housing and Urban Development (Special)
92-164	Adds language to § 17.16.060(B), zoning (Repealed by 96-555)
Amdt. 1	Amends § 1 of Ord. 92-164 (Repealed by 96-555)
92-165	(Withdrawn)
92-166	Amends § 17.28.030, zoning (Repealed by 96-555)
92-167	Renames certain street (Special)
92-168	Street vacation (Special)
92-169	Street and easement vacation (Special)
92-170	Street vacation (Special)
92-171	Street vacation (Special)
92-172	Vacates certain alleys (Special)
92-173	Abandons certain public utility easements (Special)
Amdt. 1	Repeals and replaces § 2 of Ord. 92-173 (Special)
92-174	Approves contract with Harpeth Valley Utilities District (Special)
92-175	Acquisition of property for utility easements (Special)
92-176	Acquisition of property (Special)
92-177	(Deferred)
92-178	Approves the Repetitive Loss Plan (Special)
92-179	Amends zoning map (Special)
92-180	Amends zoning map (Special)
92-181	Amends zoning map (Special)
92-182	Amends zoning map (Special)
92-183	Amends zoning map (Special)
92-184	Amends zoning map (Special)
92-185	(Withdrawn)
92-186	(Withdrawn)
92-187	(Vetoed)
92-188	Agreement with U-Haul Real Estate Company (Special)
Amdt. 1	Adds new § 2 and renumbers present § 2 to be § 3 of Ord. 92-188 (Special)
92-189	Acquisition of property (Special)
92-190	Adds § 12.12.170(E), neighborhood watch signs (12.12)
Amdt. 1	Amends § 1 of Ord. 92-190, neighborhood watch signs (12.12)

Ordinance Number	Disposition
92-191	Authorizes sale of certain property (Special)
92-192	Street naming (Special)
92-193	Vacates certain alley (Special)
92-194	Vacates portion of certain public ways (Special)
Amdt. 1	Amends § 2 of Ord. 92-194 (Special)
92-195	Vacates portion of certain public ways (Special)
Amdt. 1	Amends § 4 of Ord. 92-195 (Special)
92-196	Acquisition of property for utility easements (Special)
92-197	Approves grant contract with the Metropolitan Nashville Airport Authority (Special)
92-198	Approves grant contract with the Center for Human Development, Inc. (Special)
92-199	Amends zoning map (Special)
92-200	Amends zoning map (Special)
92-201	Amends zoning map (Special)
92-202	(Withdrawn)
92-203	Approves new fee structure for emergency ambulance service (Special)
92-204	Agreement with the Supreme Court of Tennessee to reimburse the costs of drug offense caseloads (Special)
92-205	Acceptance of two America the Beautiful grants for the board of Parks and Recreation (Special)
92-206	Acquisition of utility easement for public projects (Special)
92-207	Acceptance of payment for water system improvements (Special)
92-208	Adds language to Ch. 6.52, plumbing contractor vehicle requirements (6.52)
92-209	Amends § 12.08.170, fines or overtime parking (12.08)
92-210	Adds Art. IV to Title 2 [Title 4], procurement code; repeals §§ 2.24.260—2.24.360, 2.24.390—2.24.470, and Chs. 2.180, 2.184 and 2.192 (4.04, 4.08, 4.12, 4.16, 4.20, 4.24, 4.28, 4.32, 4.36, 4.40, 4.44, 4.48)
Amdt. 1	Amends § 4 of Ord. 92-210, procurement code (Not codified)
Amdt. 2	Amends § 1 of Ord. 92-210 to add § 2-101(2)(e), procurement code (4.08)
Amdt. 3	Adds § 3 and repeals and replaces § 2 in § 10-202 of Ord. 92-210, procurement code (4.40)
Amdt. 4	Adds § 6 to and repeals and replaces § 5 of Ord. 92-210, procurement code (Not codified)
92-211	Closing of certain public utility easements (Special)
92-212	Amends zoning map (Special)
Amdt. 1	Repeals and replaces § 1 of Ord. 92-212 (Special)
92-213	Conveyance of certain property to the Metropolitan Development and Housing Agency (Special)
92-214	Agreement with the city of Brentwood regarding lateral sewers project (Special)
92-215	Amends § 15.68.010, private fire hydrants (15.68)
92-216	Conveys certain property and certain right-of-way to the State Wildlife Resources Agency (Special)
92-217	Street vacation (Special)
92-218	Street vacation (Special)
92-219	Street vacation (Special)
Amdt. 1	Amends § 2 of Ord. 92-219 (Special)
92-220	Abandons certain public utility easements (Special)
92-221	New street name (Special)
92-222	(Withdrawn)
92-223	(Withdrawn)
92-224	Abandons certain public utility easements (Special)
92-225	(Withdrawn)
92-226	(Withdrawn)
92-227	Amends zoning map (Special)
92-228	(Withdrawn)
92-229	(Withdrawn)
92-230	New street name (Special)
92-231	New street name (Special)
92-232	Amends zoning map (Special)
92-233	Approves contract with the Tennessee Department of Transportation regarding funds for ridesharing program (Special)
92-234	Authorizes contract between the Metropolitan Social Services Commission and Legal Services of Middle Tennessee for legal council (Special)
92-235	Acceptance of funds from Priest Lake Presbyterian Church for fire hydrant (Special)
92-236	Acquisition of property for public works project (Special)
92-237	(Withdrawn)
92-238	Acquisition of property for public works project (Special)
92-239	Amends § 12.08.120, defensive driving course requirement (12.08)
92-240	Accepts proposal from the Department of Transportation for certain highway improvement construction (Special)
92-241	Ground lease with the YMCA (Special)
92-242	Amends § 6.64.070; repeals and replaces § 6.64.090, charitable solicitations (6.64)

Ordinance Number	Disposition
92-243	Approves contract with the Tennessee Department of Health and Environment regarding material and infant health care (Special)
92-244	Authorizes payment for additional sewer improvements (Special)
92-245	Acquisition of property for utility easements (Special)
92-246	Repeals and replaces § 7.08.090(A), sale of beer (7.08)
Amdt. 1	Amends § 2 of Ord. 92-246, sale of beer (Repealed by 92-406)
Amdt. 2	Adds language to § 2(A) of Ord. 92-246, sale of beer (7.08)
92-247	Approves sale of certain property (Special)
92-248	Amends § 5.16.060(A), privilege tax on litigation (5.16)
92-249	Creates position of Associate Metropolitan Attorney (Special)
92-250	Amends zoning map (Special)
Amdt. 1	Amends § 1 of Ord. 92-250 (Special)
92-251	Approves contract for in-patient alcohol and drug abuse treatment (Special)
92-252	Approves contract for medical services in the Community Corrections Program (Special)
92-253	Approves second amendment to the Acquisition and Operating Agreement with the Nashville Thermal Transfer Corporation (Special)
Amdt. 1	Adds §§ 1, 2, 3 and 4; renumbers § 2 and repeals § 1 of Ord. 92-253 (Special)
92-254	(Withdrawn)
92-255	Designates as (A) and amends § 17.28.320; amends § 17.28.320(A), 17.32.160, 17.32.180, 17.32.280, 17.72.170, 17.72.290, 17.88.150 and 17.88.270, zoning (Repealed by 96-555)
92-256	Repeals and replaces § 17.124.140, zoning (Repealed by 96-555)
92-257	Adds §§ 17.08.040(F), 17.12.020(B)(18), 17.24.030(18), 17.124.430 and Ch. 17.122; repeals and replaces § 17.12.070(M), zoning (Repealed by 96-555)
Amdt. 1	Amends § 1(6) of Ord. 92-257, zoning (Repealed by 97-722)
92-258	Amends zoning map (Special)
92-259	Amends zoning map (Special)
92-260	Amends zoning map (Special)
92-261	Amends zoning map (Special)
92-262	Amends zoning map (Special)
Amdt. 1	Amends § 1 of Ord. 92-262 (Special)
92-263	Amends zoning map (Special)
92-264	(Defeated)
92-265	(Withdrawn)
92-266	Amends § 17.12.080(19), zoning (Repealed by 96-555)
92-267	Adds § 17.108.215(B)(3), zoning (Repealed by 96-555)
92-268	Cable television franchise grant to Robin Media Group (Special)
92-269	Repeals and replaces § 6.80.240, wrecker service fees (Repealed by 96-612)
92-270	Rezone (Special)
92-271	Proposal for lease agreement of municipal auditorium; repeals §§ 2.116.010, 2.116.020 and 2.116.030 following final execution of lease agreement (Not codified)
Amdt. 1	Amends § 1 of Ord. 92-271 (Not codified)
92-272	Acquisition of property for utility easements (Special)
92-273	Loan of equipment for water rescue operations (Special)
92-274	(Withdrawn)
92-275	Acquisition of property for bridge replacement (Special)
92-276	Easement (Special)
92-277	Acquisition of property for utility easements (Special)
92-278	Adds section to Ch. 2.56, DUI school (Repealed by 99-1557)
92-279	Approves bank stabilization adjacent to Metro Nashville Landfill (Special)
92-280	Approves electrical service lines construction (Special)
92-281	Street vacation and parcel combining (Special)
92-282	(Failed)
92-283	Repeals and replaces § 17.120.150, zoning (Repealed by 96-555)
92-284	Approves contract for medical services (Special)
92-285	Acquisition of property for utility easements (Special)
92-286	(Withdrawn)
92-287	Authorizes health department lease (Special)
Amdt. 1	Extends Ord. 92-287 for two years (Special)
92-288	Amends § 2.148.010, tourism and convention commission (2.148)
92-289	Grant for substance abuse program (Special)
92-290	Street vacation (Special)
92-291	Amends zoning map (Special)
Amdt. 1	Amends Ord. 92-291 by deleting the word "R15" and substituting "RS15" throughout
92-292	Repeals and replaces § 13.20.030, excavations (Repealed by 94-1226)

Ordinance Number	Disposition
92-293	(Withdrawn)
92-294	New street name (Special)
92-295	Amends §§ 16.28.110(B) and 16.28.110(E); repeals and replaces § 16.28.110(A) and § 16.28.110(H), building permit fees (16.28)
Amdt. 1	Repeals and replaces § 5(2) of Ord. 92-295 building permit fees (Not codified)
92-296	(Withdrawn)
92-297	(Withdrawn)
92-298	(Withdrawn)
92-299	Adopts Capital Improvements Budget for 1992-93 (Special)
Amdt. 1	Amends portion of Ord. 92-299 (Special)
Amdt. 2	Amends portion of Ord. 92-299 (Special)
Amdt. 3	Amends portion of Ord. 92-299 (Special)
Amdt. 4	Amends portion of Ord. 92-299 (Special)
Amdt. 5	Amends portion of Ord. 92-299 (Special)
Amdt. 6	Amends portion of Ord. 92-299 (Special)
Amdt. 7	Amends portion of Ord. 92-299 (Special)
Amdt. 8	Amends portion of Ord. 92-299 (Special)
92-300	Approves grant for DUI Media Campaign (Special)
92-301	Adopts operating budget for 1992-93 (Special)
92-302	Adopts tax levy for 1992-93 (Special)
92-303	Closes portion of certain street (Special)
92-304	Adds § 17.96.070(A)(8), adds new § 17.96.140(A) and reletters former (A)—(I) to be (B)—(J); amends Tables 17.96.150, 17.96.160, 17.96.170 and 17.100.060, zoning (Repealed by 96-555)
92-305	Amends zoning map (Special)
92-306	Acquisition of property for utility easements (Special)
92-307	Approves agreement with Meharry Medical College and Vanderbilt University (Special)
Amdt. 1	Amends portion of Ord. 92-307 (Special)
92-308	Approves grant for community corrections program (Special)
92-309	(Withdrawn)
92-310	(Withdrawn)
92-311	Amends zoning map (Special)
92-312	Amends zoning map (Special)
92-313	Amends zoning map (Special)
92-314	Amends zoning map (Special)
92-315	Amends zoning map (Special)
92-316	Amends zoning map (Special)
92-317	Amends zoning map (Special)
92-318	Street vacation (Special)
92-319	(Withdrawn)
92-320	(Withdrawn)
92-321	Amends § 2.64.050, board and commission meeting requirements (2.64)
92-322	Possession of alcoholic beverages in open containers (7.24)
92-323	Readopts code (Special)
92-324	Alters certain council district boundaries (Special)
Amdt.1	Amends portion of Ord. 92-324 (Special)
92-325	Adds language to § 10.20.085(A) and (B), chipper service for yard waste (10.20)
92-326	Approves contact with chamber of commerce (Special)
92-327	Authorizes lease agreement (Special)
92-328	Approves contract with the Emergency Communications District (Special)
92-329	Amends zoning map (Special)
92-330	Rezone (Special)
92-331	Amends zoning map (Special)
Amdt. 1	Amends Ord. 92-331 by repealing and replacing attached plan (Special)
92-332	Street dedication (Special)
92-333	New street name (Special)
92-334	Street vacation (Special)
92-335	New street name (Special)
92-336	Street name change (Special)
92-337	Rezone (Special)
92-338	Adds subsections (C) and (D) to § 7.16.030, retail liquor license (7.16)
92-339	Approves agreement with Meharry Medical college and Vanderbilt University (Special)
Amdt. 1	Adds new § 4 to Ord. 92-339 and renumbering later items (Special)
92-340	Amends zoning map (Special)
92-341	(Defeated)
92-342	Rezone (Special)
Amdt. 1	Amends Ord. 92-342 by amending caption and repealing and replacing § 1 (Special)
92-343	Acquisition of certain property (Special)
92-344	Street vacation (Special)
92-345	Street vacation (Special)
92-346	Street name change (Special)
92-347	Street name change (Special)
92-348	Approves E-911 contract (Special)
92-349	Amends § 2.124.050(C)(1), convention center commission (2.124)
Amdt. 1	Amends § 1 of Ord. 92-349, convention center commission (2.124)
92-350	(Withdrawn)
92-351	State grant (Special)
Amdt. 1	Amends Ord. 92-351 by changing date in § 1 (Special)
92-352	State grant (Special)
92-353	Federal grant (Special)

Ordinance Number	Disposition
92-354	Amends §§ 2.152.010 and 2.152.020(A), Metro beautification and environment commission; and changes "beautification bureau" to "metro beautification and environment commission" throughout chapter (2.152)
92-355	Acquisition of land for utility easements (Special)
92-356	Adopts property identification maps (Special)
92-357	Amends zoning map (Special)
92-358	Amends zoning map (Special)
92-359	Amends zoning map (Special)
92-360	(Withdrawn)
92-361	(Deferred)
92-362	Street name change (Special)
92-363	(Vetoed)
92-364	Street name change (Special)
92-365	Amends Table 17.72.090A, zoning (Repealed by 96-555)
92-366	Amends zoning map (Special)
92-367	Amends zoning map (Special)
92-368	Amends zoning map (Special)
92-369	Amends zoning map (Special)
92-370	Amends portions of Ord. 89-806 (Special)
92-371	Alley vacation (Special)
92-372	Service of process for actions involving nonpayment of certain traffic tickets or citations (12.08)
92-373	Approves contract with Public Library Board (Special)
92-374	Approves grant from Department of Finance and Administration (Special)
92-375	Approves grant from Department of Finance and Administration for Weed and Seed Program (Special)
92-376	Rezone (Special)
92-377	Amends zoning map (Special)
92-378	Amends §§ 17.12.080 and 17.60.020 (C)(7), Tables 17.72.100(A) and 17.72.220, zoning (Repealed by 96-555)
92-379	Street name change (Special)
92-380	Adopts the Official Street and Alley Acceptance and Maintenance Map (Special)
92-381	Creates the positions of deputy public defender and chief criminal investigator (Special)
92-382	Approves agreement with Colonial Pipeline Company (Special)
92-383	Approves lease agreement (Special)
92-384	Approves sewer installation and appropriates a reimbursement therefor (Repealed by 1488)
92-385	Sale of certain surplus property (Special)
92-386	(Withdrawn)
92-387	Street name change (Special)
92-388	Acquisition of property for utility easements (Special)
92-389	Approves lease agreement (Special)
92-390	Agreement with city of La Vergne for the sale of water (Special)
92-391	Approves contract with the Tennessee Department of Health and Environment for funding (Special)
92-392	Approves lease agreement (Special)
92-393	Authorizes receipt of partial payment for certain sewer construction (Special)
92-394	Approves a State Highway Safety Grant (Special)
92-395	Amends Bill 91-55, amendment to certain grant approval (Special)
92-396	Adds § 10.48.050(E); amends § 10.48.070(B), public swimming pools (10.48)
92-397	Acquisition of property for utility easements (Special)
92-398	Amends § 13.12.190(A)(2), sight obstructions (13.12)
92-399	Authorizes receipt of partial payment for certain sewer construction (Special)
92-400	(Withdrawn)
92-401	(Withdrawn)
92-402	(Deferred)
92-403	Alley vacation (Special)
92-404	Closure of certain right-of-way (Special)
92-405	Street name change (Special)
Amdt. 1	Amends caption and § 1 Ord. 92-405 (Special)
92-406	Repeals Amdt. 1 to Ord. 92-246, sale of beer (Repealer)
92-407	Approves low-rent housing development (Special)
Amdt. 1	Amends Exhibit A of Ord. 92-407 (Special)
Amdt. 2	Amends Exhibit A of Ord. 92-407 (Special)
92-408	(Withdrawn)
92-409	(Withdrawn)
92-410	Authorizes agreement with the city of Brentwood (Special)
92-411	Acquisition of property (Special)
92-412	Authorizes certain agreements (Special)
Amdt. 1	Amends § 1 of Ord. 92-412 and replaces attached agreements (Special)
92-413	Authorizes § 11.28.080(A) and (B), loitering during school hours (11.28)
92-414	Approves contract with Peace, Inc. (Special)
92-415	Creates the justice information system (2.56)

Ordinance Number	Disposition
Amdt. 1	Amends § 3 of Ord. 92-415, justice information system (2.56)
92-416	Amends Arts. 7 and 11 of Ord. 92-210, procurement code (4.28, 4.44)
92-417	Abandons certain public utility easements (Special)
92-418	(Withdrawn)
92-419	(Withdrawn)
92-420	Approves lease agreement (Special)
92-421	Street closure (Special)
92-422	Rezone (Special)
Amdt. 1	Amends caption and § 1 of Ord. 92-422 (Special)
92-423	Rezone (Special)
92-424	Approves sale of certain property (Special)
92-425	Approves sale of certain property (Special)
92-426	Street closure (Special)
92-427	Rezone (Special)
92-428	(Deferred)
92-429	Adds paragraph to § 17.100.210, zoning (Repealed by 96-555)
92-430	Adds definitions to Ch. 17.04; adds Div. 7 to Title 17 (Ch. 17.110) and renumbers the following divisions; repeals and replaces Art. II of Ch. 17.24, §§ 17.36.160, 17.44.060, Art. III of Ch. 17.60, Art. III of Ch. 17.80, §§ 17.96.130, 17.100.230, 17.104.210 and 17.108.200; repeals §§ 17.04.400, 17.04.990, 17.04.1020—17.04.1110, 17.04.1130—17.04.1200, 17.100.240—17.100.300, Table 17.100.260, 17.104.220—17.104.250, 17.128.250—17.128.300, 17.128.420, 17.128.430 and 17.128.460, zoning (Repealed by 96-555)
92-431	Establishes the Combat Auto Theft Program (2.44)
92-432	Approves grant for the County Juvenile Court (Special)
92-433	Approves sewer installation and appropriations therefor (Special)
92-434	Repeals and replaces sentence in § 2 of Ord. 92-246, sale of beer (7.08)
92-435	Accepts grant for the district attorney general (Special)
92-436	Authorizes contract with the state for funds for the public library system (Special)
92-437	Authorizes contract with state for inmate litter pickup (Special)
92-438	Street name change (Special)
92-439	Authorizes agreement with the Nolensville/College Grove Utility District for the purchase of water (Special)
92-440	Adds § 10.28.060(D), control of excess vegetation (10.28)
Amdt. 1	Adds sentence to § 10.28.060(D), control of excess vegetation (10.28)
92-441	Rezone (Special)
92-442	Rezone (Special)
92-443	Rezone (Special)
92-444	Alley closure (Special)
92-445	Approves grant for the Victim's Intervention Program (Special)
92-446	(Withdrawn)
92-447	Alley closure (Special)
92-448	Adds language to § 2(A) of Ord. 92-246, sale of beer (7.08)
92-449	Street name change (Special)
92-450	Acquisition of property for utility easements (Special)
92-451	Acquisition of property for utility easements (Special)
92-452	Authorizes acceptance of funds for construction of a water line (Special)
92-453	Approves receipt of grant for transportation planning (Special)
92-454	Approves a grant for establishing a DUI media campaign (Special)
92-455	Creates the position of criminal justice coordinator (Special)
92-456	Repeals and replaces § 2-302(5) of the procurement code (4.08)
92-457	Approves grant for enhanced highway safety (Special)
92-458	Sale of certain surplus property (Special)
92-459	Sale of certain surplus property (Special)
92-460	Sale of certain surplus property (Special)
92-461	Sale of certain surplus property (Special)
92-462	Repeals and replaces § 3.28.090(A), hazardous duty death benefits (3.28)
92-463	Sale of certain surplus property (Special)
92-464	Authorizes application for community development block grant (Special)
92-465	Rezone (Special)
Amdt. 1	Attaches Exhibit A to Ord. 92-465 (Special)
Amdt. 2	Amends language in Ord. 92-465 to change all references in the caption and § 1 from "CG District" to "OP District" (Special)
92-466	Amends zoning map (Special)
92-467	Amends zoning map (Special)
92-468	Alley closure (Special)
92-469	Repeals and replaces § 15.32.020, Table 15.32.020, § 15.32.050 § 15.44.020 and Table 15.44.020, water and sewer rates and charges (15.32)
92-470	Repeals and replaces § 10.60.100(G), burglar and fire alarm systems (10.60)
92-471	Landfill gas development agreement and lease (Special)

Ordinance Number	Disposition
Amdt. 1	Adds sentence to § 1 of Ord. 92-471 (Special)
92-472	Amends § 2 of Ord. 92-246, sale of beer (Repealed by 93-512)
92-473	Amends zoning map (Special)
92-474	Sale of certain surplus property (Special)
92-475	Alley closure (Special)
92-476	(Withdrawn)
92-477	(Withdrawn)
92-478	Accepts SBA Tree Planting Program grant (Special)
92-479	Alley closure (Special)
92-480	Authorizes application submittal for the Home Investment Partnership Program (Special)
92-481	Accepts a grant of right-of-way (Special)
92-482	(Withdrawn)
92-483	Rezone (Special)
92-484	(Withdrawn)
92-485	Amends zoning map (Special)
92-486	Amends zoning map (Special)
92-487	Zone change (Special)
92-488	Rezone (Special)
92-489	New street name (Special)
92-490	Amends § 1 of Ord. 92-292, excavations (Repealed by 94-1226)
Amdt. 1	Adds language to § 1 of Ord. 92-490, excavations (Repealed by 94-1226)
Amdt. 2	Amends § 1 of Ord. 92-490, excavations (Repealed by 94-1226)
92-491	Right-of-way abandonment (Special)
92-492	Approves amendment to grant for substance abuse programs (Special)
92-493	Amends § 15.32.040, water rates (15.32)
92-494	Acceptance of pumping station (Special)
92-495	Rezone (Special)
92-496	Amends zoning map (Special)
92-497	Amends zoning map (Special)
92-498	Rezone (Special)
92-499	Street closure (Special)
Amdt. 1	Amends § 1 of Ord. 92-499 (Special)
92-500	Amends zoning map (Special)
92-501	Rezone (Special)
92-502	(Withdrawn)
92-503	Approves lease agreement for primary care clinic (Special)
93-504	(Withdrawn)
93-505	Adds § 13.08.010(C), official street and alley acceptance and maintenance map (13.08)
93-506	Alley closure (Special)
93-507	Alley closure (Special)
93-508	Alley closure (Special)
93-509	Street closure (Special)
93-510	Alley closure (Special)
93-511	Street closure (Special)
93-512	Repeals Ord. 92-472 (Repealer)
93-513	Adds § 15.48.260, returned check charge (15.48)
93-514	(Withdrawn)
93-515	Approves contract for installation of a traffic signal (Special)
93-516	Approves contract for installation of a traffic signal (Special)
93-517	Approves contract regarding closure of landfill (Special)
93-518	Acceptance of proposal from Department of Transportation (Special)
93-519	Acquisition of property for utility easements (Special)
93-520	Acquisition of property (Special)
93-521	Acquisition of property for utility easements (Special)
93-522	Accepts certain water and sanitary sewerages (Special)
93-523	Accepts grant of nonexclusive rights to use certain railroad line (Special)
93-524	Zone change (Special)
93-525	Alley closure (Special)
93-526	Alley closure (Special)
93-527	Acquisition of property for utility easements (Special)
93-528	Acquisition of property (Special)
93-529	Authorizes construction under right-of-way and alley (Special)
Amdt. 1	Amends Ord. 93-529 by deleting a certain whereas recital and substituting the word "ordinance" for the word "resolution" in Sections 1, 6, 10 and 11 (Special)
93-530	Amends §§ 17.60.020(D), 17.72.110, Table 17.72.220 and § 17.132.110(B), zoning (Repealed by 96-555)
93-531	Amends zoning map (Special)
93-532	Zone change (Special)
93-533	Amends zoning map (Special)
93-534	Amends zoning map (Special)
93-535	Zone change (Special)
93-536	(Withdrawn)
93-537	(Withdrawn)
93-538	Repeals and replaces §§ 17.28.370(A) and 17.96.170(A)(2), zoning (Repealed by 96-555)
93-539	Amends § 17.60.020(C)(4) and (13), zoning (Repealed by 96-555)
93-540	Adds Table 17.108.250; amends § 17.108.250, zoning (Repealed by 96-555)
93-541	(Withdrawn)

Ordinance Number	Disposition
93-542	Adds § 17.16.060(P), zoning (Repealed by 96-555)
93-543	Approves lease agreement (Special)
93-544	Acquisition of property (Repealed by 93-652)
93-545	Authorizes sewer service rights for certain areas (Special)
93-546	Street vacation (Special)
93-547	Rezone (Special)
93-548	(Withdrawn)
93-549	(Withdrawn)
93-550	Amends zoning map (Special)
93-551	Rezone (Special)
93-552	Amends zoning map (Special)
93-553	Amends zoning map (Special)
93-554	(Withdrawn)
93-555	Amends Table 17.100.060, zoning (Repealed by 96-555)
93-556	Zone change (Special)
93-557	Zone change (Special)
93-558	Amends zoning map (Special)
93-559	Zone change (Special)
93-560	Amends zoning map (Special)
93-561	(Withdrawn)
93-562	Establishes a residential permit parking program; adds § 12.08.170(E) and § 12.40.040(A)(2)(j), vehicles and traffic (12.08, 12.40, 12.42)
93-563	Authorizes contract for legal services for metropolitan social services commission (Special)
93-564	Amends § 2.128.030, historical commission (2.128)
93-565	Sale of certain property (Special)
93-566	Acquisition of property (Special)
93-567	Amends §§ 15.48.220(B) and 15.48.230, water and sewer service billing (15.48)
93-568	Accepts grant for water/sewer rights (Special)
93-569	Acquisition of property (Special)
93-570	Amends §§ 16.20.140, 16.20.150 and 16.20.170, Electrical Code (16.20)
93-571	Right-of-way closure (Special)
93-572	Amends zoning map (Special)
93-573	Amends zoning map (Special)
93-574	Amends zoning map (Special)
93-575	Amends §§ 12.08.040, 12.12.010—12.12.030, 12.12.110, 12.12.130, 12.12.150, 12.16.100, 12.24.020, 12.24.030, 12.28.020, 12.28.030, 12.36.080, 12.36.100, 12.40.020, 12.40.050, 12.40.070, 12.40.100, 12.40.110, 12.44.010, 12.44.020, 12.44.090(A), 13.12.030 and 13.12.080, transferring responsibility for traffic and parking control to the department of public works (12.08, 12.12, 12.16, 12.24, 12.28, 12.36, 12.40, 12.44, 12.48, 13.12)
93-576	Amends § 2.112.020, metropolitan arts commission (2.112)
93-577	Readopts code (1.01)
93-578	Amends § 2.40.130(C) and (D), defense counsel to employees (2.40)
93-579	Amends §§ 7.20.030 and 7.20.040, wholesale beer salesmen; repeals § 7.20.020 (7.20)
93-580	Property conveyance to the Country Music Foundation (Special)
93-581	(Withdrawn)
93-582	Repeals and replaces § 7.04.020, metropolitan beer permit board (7.04)
93-583	Amends § 15.48.260, returned check charge (15.48)
93-584	Establishes downtown area residential permit parking program; amends § 12.08.170, penalty for violation (12.08, 12.42)
93-585	Accepts an America the Beautiful grant for the board of parks and recreation (Special)
93-586	Street closures (Special)
93-587	Approves six-month lease (Special)
93-588	(Withdrawn)
93-589	Acquisition of property (Special)
93-590	Amends zoning map (Special)
93-591	Amends zoning map (Special)
93-592	(Withdrawn)
93-593	Sidewalk cafe dining facilities (13.32)
93-594	Authorizes acceptance and maintenance of intersection (Special)
93-595	Authorizes acceptance and maintenance of roadway (Special)
93-596	Authorizes acceptance and maintenance of roadway (Special)
Amdt. 1	Repeals and replaces Exh. A of Ord. 93-596 (Special)
93-597	Authorizes acceptance and maintenance of roadway (Special)
Amdt. 1	Repeals and replaces Exh. A of Ord. 93-597 (Special)
93-598	Authorizes acceptance and maintenance of roadway (Special)
93-599	Naming of street (Special)
93-600	Amends zoning map (Special)

Ordinance Number	Disposition
93-601	Amends zoning map (Special)
93-602	Amends zoning map (Special)
93-603	Amends zoning map (Special)
93-604	(Withdrawn)
93-605	Amends zoning map (Special)
93-606	(Withdrawn)
93-607	Alley closure (Special)
Amdt. 1	Repeals and replaces § 3 of Ord. 93-607 (Special)
93-608	Roadway closure (Special)
93-609	(Withdrawn)
93-610	Creates position of Juvenile Court Senior Referee (Not codified)
93-611	Creates position of Justice Information System Director (Not codified)
93-612	Creates the positions of Zoning Examination Chief and Zoning Inspector Chief (Not codified)
93-613	Acquisition of property (Special)
93-614	Acquisition of property (Special)
93-615	Authorizes acceptance of funds from Wal-Mart stores (Special)
93-616	Authorizes acceptance of funds from Music Valley Associates (Special)
93-617	Amends § 2.44.090, special police commissions, security guard directives and handgun permits/written directives (2.44)
93-618	(Withdrawn)
93-619	Authorizes agreement with Tennessee Department of Transportation (Special)
93-620	Adds §§ 12.08.210—12.08.230; amends § 12.40.040; repeals § 12.08.150(B)(5) and renumbers the remaining subsection, abandoned vehicles (12.08, 12.40)
93-621	Accepts grant for forestry program (Special)
93-622	Repeals and replaces § 1 of Ord. 92-352, approval of grant (Special)
93-623	(Withdrawn)
93-624	Adds § 3.40.050, minimum service pension benefit (3.40)
Amdt. 1	Repeals and replaces § 3 of Ord. 93-624, minimum service pension benefit (3.40)
Amdt. 2	Amends § 1(B) and (D) of Ord. 93-624, minimum service pension benefit (3.40)
93-625	Amends zoning map (Special)
93-626	Amends zoning map (Special)
93-627	Amends zoning map (Special)
93-628	Amends zoning map (Special)
93-629	Amends zoning map (Special)
Amdt. 1	Amends § 1 of Ord. 93-629 (Special)
93-630	Amends zoning map (Special)
93-631	Amends zoning map (Special)
93-632	Amends zoning map (Special)
93-633	Rezone (Special)
93-634	Roadway closure (Special)
93-635	Accepts donation of property (Special)
93-636	Amends zoning map (Special)
93-637	(Withdrawn)
93-638	System for approval of street name changes (13.08)
Amdt. 1	Repeals and replaces § 2 (B) and (C) of Ord. 93-638, system for approval of street name changes (13.08)
Amdt. 2	Amends § 2(A), (C) and (D) of Ord. 93-638, system for approval of street name changes (13.08)
93-639	(Failed)
93-640	Amends contract for grant for department of corrections (Special)
93-641	(Failed)
93-642	(Failed)
93-643	Rezone (Special)
93-644	Amends zoning map (Special)
93-645	Amends zoning map (Special)
93-646	Amends zoning map (Special)
93-647	Sets fees for reproduction of computer-generated maps (Repealed by 97-797)
93-648	(Withdrawn)
93-649	Approves agreement with U.S. Army Corps of Engineers (Special)
93-650	Approves joint funding agreement for installation of rainfall and stream flow gauging stations (Special)
93-651	Acquisition of property (Special)
93-652	Acquisition of property (Special)
Amdt. 1	Amends Ord. 93-652 by adding § 7 and renumbering current § 7 to be § 8 (Special)
93-653	Acquisition of property (Special)
93-654	Execution of easement (Special)
93-655	Grants privilege to construct and maintain encroachments over certain right-of-way (Special)
Amdt.1	Amends §§ 9 and 11 of Ord. 93-655 (Special)
93-656	Authorizes construction over right-of-way (Special)
Amdt. 1	Amends § 11 of Ord. 93-656 (Special)
93-657	Mutual aid agreement with city of Belle Meade for police service in Percy Warner Park (Special)
Amdt. 1	Amends § 1 of Ord. 93-657 (Special)
93-658	(Withdrawn)
93-659	Amends zoning map (Special)
93-660	Amends zoning map (Special)
93-661	(Withdrawn)
93-662	Amends § 17.96.060, zoning (Repealed by 96-555)

Ordinance Number	Disposition
93-663	(Withdrawn)
93-664	Sale of certain property (Special)
93-665	Adopts Capital Improvements Budget and Program 1993-94 (Not codified)
Amdt. 1	Amends Ord. 93-665 (Not codified)
Amdt. 2	Amends Ord. 93-665 (Not codified)
Amdt. 3	Amends Ord. 93-665 (Not codified)
Amdt. 4	Amends Ord. 93-665 (Not codified)
Amdt. 5	Amends Ord. 93-665 (Not codified)
Amdt. 6	Amends Ord. 93-665 (Not codified)
Amdt. 7	Amends Ord. 93-665 (Not codified)
Amdt. 8	Amends Ord. 93-665 (Not codified)
Amdt. 9	Amends Ord. 93-665 (Not codified)
Amdt. 10	Amends Ord. 93-665 (Not codified)
Amdt. 11	Amends Ord. 93-665 (Not codified)
93-666	Budget (Special)
93-667	Tax levy (Special)
93-668	Approval of grants (Special)
93-669	Amends § 7.08.170(M), beer wholesaler deliveries (7.08)
93-670	Authorizes construction under right-of-way (Special)
93-671	Authorizes construction under right-of-way (Special)
93-672	(Withdrawn)
93-673	Amends zoning map (Special)
93-674	Amends zoning map (Special)
93-675	Amends zoning map (Special)
93-676	Amends zoning map (Special)
93-677	Amends § 17.60.020, zoning (Repealed by 96-555)
93-678	Amends § 1(B) of Ord. 93-538, zoning (Repealed by 96-555)
93-679	(Failed)
93-680	(Withdrawn)
93-681	Adopts property identification maps (Special)
93-682	Appropriation of funds (Special)
93-683	(Withdrawn)
93-684	Authorizes payment for sewer system improvements (Special)
93-685	Fees for the nullification or conditional dismissal of nonmoving traffic violations (Not codified)
Amdt. 1	Repeals and replaces § 1 of Ord. 93-685 (Not codified)
93-686	Amends Ord. 83-1335 by approval of Amdt. 1 to said agreement (Special)
93-687	Establishes department of information systems; repeals §§ 2.24.110—2.24.140 (2.24)
93-688	Adds provisions to Ch. 2.24, office of telecommunications; repeals §§ 2.176.010—2.176.040 (2.24)
93-689	Authorizes mayor to execute certain agreement (Special)
93-690	Authorizes lease agreement (Special)
93-691	Authorizes contract with University of Cincinnati (Special)
93-692	Approves sublease agreement (Special)
93-693	Amends § 17.08.250, zoning (Repealed by 96-555)
93-694	Amends zoning map (Special)
93-695	Amends zoning map (Special)
93-696	Amends zoning map (Special)
93-697	Amends zoning map (Special)
93-698	Rezone (Special)
93-699	(Withdrawn)
93-700	Amends zoning map (Special)
93-701	Amends zoning map (Special)
93-702	Amends zoning map (Special)
93-703	Amends zoning map (Special)
93-704	Amends zoning map (Special)
93-705	Adds § 17.124.430(J), zoning (Repealed by 97-722)
93-706	Repeals and replaces § 17.110.120(I), zoning (Repealed by 96-555)
Amdt. 1	Amends § 1(2) of Ord. 93-706, zoning (Repealed by 96-555)
93-707	(Deferred)
93-708	(Deferred)
93-709	Amends § 17.110.640 (3)(A), zoning (Repealed by 96-555)
Amdt. 1	Amends § 1 of Ord. 93-709, zoning (Repealed by 96-555)
93-710	Amends § 17.110.220(A), zoning (Repealed by 96-555)
Amdt. 1	Amends § 1 of Ord. 93-710, zoning (Repealed by 96-555)
93-711	(Withdrawn)
93-712	Authorizes construction under right-of-way (Special)
93-713	Alley closure (Special)
93-714	Sale of certain property (Special)
93-715	Amends zoning map (Special)
93-716	Amends zoning map (Special)
93-717	(Withdrawn)
93-718	Amends zoning map (Special)
93-719	Amends zoning map (Special)
Amdt. 1	Amends § 1 of Ord. 93-719 (Special)
Amdt. 2	Amends Ord. 93-719 (Special)
93-720	(Withdrawn)
93-721	Street name change (Special)
93-722	Street name change (Special)
93-723	Right-of-way closure (Special)
93-724	Adds § 11.12.070(C), excessive noise (11.12)
Amdt. 1	Repeals and replaces § 1 of Ord. 93-724, excessive noise (11.12)

Ordinance Number	Disposition
93-725	Amends zoning map (Special)
93-726	Authorizes contract with state for litter pick up (Special)
93-727	Adds language to § 12.08.100, driver's or chauffeur's license (12.08)
93-728	Adds § 12.08.080(C) and (D) and reletters current (C) to be (E), state registration plates (12.08)
93-729	Amends § 12.32.090(A), equipment and other nonmoving violations (12.32)
93-730	Approves plan for reappraisal and equalization of assessments (Not codified)
93-731	Authorizes lease agreement (Special)
93-732	(Withdrawn)
93-733	Takeover by metropolitan government of Nashville and Davidson County of the First Suburban Water Utility District of Davidson County (Not codified)
Amdt. 1	Amends the second recital and §§ 1, 2 and 3 of Ord. 93-733 (Not codified)
93-734	Approves contract with the Emergency Communications District (Special)
93-735	Approves contract with chamber of commerce (Special)
93-736	Amends zoning map (Special)
93-739	Street closure (Special)
93-740	Street closure (Special)
93-741	Acquisition of property (Special)
93-742	Acquisition of property (Special)
93-743	Authorizes contract for replacement of certain bridge under Federal Bridge Replacement Program (Special)
Amdt. 1	Amends § 1 of Ord. 93-743 (Special)
93-744	Authorizes payment and/or reimbursement to certain employees for payment of professional privilege tax (Special)
93-745	Authorizes contract for the public library system (Special)
93-746	Approves contract for performance of surveys of historical property (Special)
93-747	Authorizes construction under right-of-way (Special)
93-748	(Defeated)
93-749	Amends § 17.04.125, zoning (Repealed by 96-555)
93-750	Amends zoning map (Special)
93-751	(Withdrawn)
93-752	Rezone (Special)
93-753	Requires that rock and fill removed from construction sites owned by the metropolitan government be placed at other metropolitan government sites that need fill (Not codified)
93-754	(Withdrawn)
93-755	Authorizes construction, installation and maintenance of sign over certain sidewalk (Special)
93-756	(Failed)
93-757	Approves first amendment to certain lease agreement (Special)
93-758	Approves certain lease expansion agreement (Special)
93-759	(Withdrawn)
93-760	Rezone (Special)
Amdt. 1	Amends § 1 of Ord. 93-760 (Special)
93-761	Rezone (Special)
93-762	Amends zoning map (Special)
Amdt. 1	Repeals and replaces plan for Ord. 93-762 (Special)
93-763	Amends zoning map (Special)
93-764	Rezone (Special)
93-765	Rezone (Special)
93-766	Rezone (Special)
93-767	Amends zoning map (Special)
93-768	(Withdrawn)
93-769	(Withdrawn)
93-770	(Withdrawn)
93-771	(Withdrawn)
93-772	(Deferred)
Amdt. 1	Adds language to §D(2) of Phillips-Jackson Street redevelopment plan (Special)
Amdt. 2	Amends R.P. Maps Nos. 1, 2 and 3 to reflect new boundary description; repeals and replaces Exhibit A of Ord. 93-773 (Special)
93-774	Approves amdt. 3 to the Capitol Mall Redevelopment Project Plan (Special)
93-775	Authorizes contract for the public library system (Special)
93-776	Accepts conveyance of certain property (Special)
93-777	Authorizes first supplemental agreement to a lease for certain Metropolitan Board of Parks and Recreation properties (Special)
93-778	Approves contract for accreditation between the American Correctional Association and the metropolitan government (Special)
93-779	Approves lease agreement (Special)
93-780	Approves contract for grant of federal funds (Special)
93-781	Rezone (Special)
93-782	(Withdrawn)
93-783	Amends zoning map (Special)
93-784	Alley closure (Special)
93-785	Alley closure (Special)
93-786	Right-of-way abandonment (Special)

Ordinance Number	Disposition
93-787	Repeals and replaces § 2.154.010, membership of greenway commission (2.154)
93-788	(Withdrawn)
93-789	Amends § 2.44.130, school mother's patrol division (2.44)
93-790	Amends Ch. 10.56, air pollution control (10.56)
Amdt. 1	Amends subsection A of § 6 of Ord. 93-790, air pollution (10.56)
93-791	Amends § 6.92.010(A), 6.92.040, 6.92.-050 and 6.92.060, closing-out sales (6.92)
93-792	Adds § 15.48.270, water and sewer reinstatement charge (15.48)
93-793	Adds § 6.08.040(E); amends § 6.08.030; renumbers § 6.08.250(F) and (G) to be (B) and (C); repeals and replaces §6.08.040(D) and 6.08.250(A); repeals and replaces § 6.08.250 (B)—(E), cable television rates and service (Repealed by 95-1368)
Amdt. 1	Adds language to subsection A of § 3 of Ord. 93-793; repeals and replaces first paragraph of § 2 of Ord. 93-793, CATV special committee (Repealed by 95-1368)
93-794	Adds language to § 3.08.010, metropolitan employee benefit system (3.08)
93-795	Adds new § 3.28.060(F); renumbers current § 3.28.060 (F), (G) and (H) to be § 3.28.060 (G), (H) and (I), metropolitan benefit system (3.28)
93-796	Readopts the Code of the Metropolitan Government of Nashville and Davidson County, Tennessee, as prepared by Book Publishing Company, including supplemental and replacement pages, containing ordinances enacted or before 3/18/93; requires copies to be on file; designates penalty for code violations (Not codified)
93-797	Amends Ord. 93-668, approval of certain grants (Special)
93-798	Authorizes acceptance of certain donated property (Special)
93-799	(Failed)
93-800	Authorizes contract for a grant for the Arts Builds Communities Grant Program (Special)
93-801	Authorizes contract for a grant to help fund a cultural tourism workshop (Special)
93-802	Accepts grant for use and benefit of juvenile court of Davidson County (Special)
93-803	(Withdrawn)
93-804	Acquisition of property (Special)
93-805	Acquisition of property (Special)
93-806	Acquisition of property (Special)
93-807	Acquisition of property (Special)
93-808	Authorizes right-of-way acquisition and certain construction projects (Special)
93-809	Amends Ords. 92-289, 92-374 and 92-375, extends terms of certain grants (Special)
93-810	Abandonment of certain sewer easements (Special)
Amdt. 1	Adds § 3 to Ord. 93-810; repeals and replaces § 2 of Ord. 93-810 (Special)
93-811	Rezone (Special)
93-812	(Withdrawn)
93-813	Street name change (Special)
93-814	(Withdrawn)
93-815	Notice to owners of property prior to construction work in easements (13.20)
Amdt. 1	Adds language to § 1 of Ord. 93-815 (13.20)
93-816	(Withdrawn)
93-817	Authorizes right-of-way acquisition and certain construction projects (Special)
93-818	Approves contract for study to identity and improve congestion intersections in Davidson County (Special)
93-819	Authorizes contract for improvements to Bell Road (Special)
Amdt. 1	Adds language to § 1 of Ord. 93-819 (Special)
93-820	Approves contract for a signal progression study (Special)
93-821	Adds §§ 10.20.330, and 10.20.340; adds language to §§ 10.20.090, 10.20.160(B) and 10.20.260; amends term "dump fee" to be "tip fee" and "dumping fee" to be "tipping fee" throughout Ch. 10.20; amends §§ 10.20.120(B) and 10.20.220(A); renumbers existing § 10.20.330 to be 10.20.350; repeals and replaces §§ 10.20.200, 10.20.210, 10.20.240 and 10.20.300(A)(4), solid waste collection and disposal (10.20)
93-822	Repeals and replaces § 15.48.030, water and sewer deposits and initiation fees (15.48)
93-823	Authorizes conveyance of permanent right-of-way and utility easement (Special)
93-824	Adopts the Official Street and Alley Acceptance and Maintenance Map for the metropolitan government of Nashville and Davidson County (Special)
93-825	Accepts Amdt. 10 to Edgehill urban renewal plan (Special)
93-826	(Failed)
93-827	Accepts certain water and sanitary sewer extensions to public water and sewerage systems (Special)
93-828	(Withdrawn)

Ordinance Number	Disposition
93-829	Authorizes contract, as amended, between Davidson County Clerk and State of Tennessee Department of Safety (Special)
Amdt. 1	Adds language to § 1 of Ord. 93-829 (Special)
93-830	(Withdrawn)
93-831	Rezone (Special)
93-832	(Withdrawn)
93-833	(Defeated)
93-834	Rezone (Special)
93-835	(Withdrawn)
93-836	Rezone (Special)
93-837	Amends zoning map (Special)
93-838	(Withdrawn)
93-839	(Withdrawn)
93-840	Rezone (Special)
93-841	(Withdrawn)
93-842	Rezone (Special)
93-843	Amends § 16.08.010(D), adoption of energy code (16.08)
93-844	Authorizes contract with Tennessee Arts Commission for grant for general operating support (Special)
93-845	Adds new § 5.12.060(B); adds language to § 5.12.010; renumbers existing § 5.12.060(B) to be § 5.12.060(C), hotel occupancy privilege tax (5.12)
93-846	Contracts Urban Services District boundaries (Charter Appx. 1)
93-847	Amends § 2.148.010, membership of Metropolitan Tourism Convention Commission (2.148)
93-848	(Withdrawn)
93-849	Amends zoning map (Special)
93-850	Rezone (Special)
93-851	Amends zoning map (Special)
93-852	Authorizes conveyance of permanent easement and temporary construction easement (Special)
93-853	Authorizes construction under right-of-way (Special)
93-854	Acquisition of property (Special)
93-855	Acquisition of property (Special)
93-856	Acquisition of property (Special)
93-857	Acquisition of property (Special)
93-858	Authorizes amdt. to contract for the development and implementation of an alternative punishment program for nonviolent offenders (Special)
93-859	Approves amdt. to master agreement between metropolitan government and Meharry Medical College (Special)
93-860	(Failed)
93-861	Amends § 2.148.010 and § 1 of Ord. 93-847, membership of metropolitan tourist and convention commission (2.148)
93-862	Authorizes mayor to make application for Community Development Block Grant funds (Special)
Amdt. 1	Amends § 1 of Ord. 93-862; repeals and replaces paragraph 2 of the section entitled "Objectives for Special Economic Development Activities" (Special)
93-863	Authorizes mayor to submit application and program description for the Home Investment Partnership Program (Special)
93-864	(Withdrawn)
93-865	Amends zoning map (Special)
93-866	Street name change (Special)
93-867	(Withdrawn)
93-868	Right-of-way abandonment (Special)
93-869	Acceptance of donation of certain parcels of property (Special)
Amdt. 1	Adds language to § 1 of Ord. 93-869 (Special)
93-870	Street and alley closure (Special)
93-871	Acquisition of property (Special)
93-872	Amends §§ 10.60.010, 10.60.020(B), 10.60.030, 10.60.050(C), 10.60.060(A), (B) and (C), 10.60.070(D) and 10.60.100(E); repeals and replaces §§ 10.60.020(A)(1), 10.60.080 and 10.60.100(C), burglar and fire alarm systems (10.60)
Amdt. 1	Amends §§ 7 and 8 of Ord. 93-872, burglar and fire alarm systems (10.60)
Amdt. 2	Renumbers existing §§ 7, 8, 9 and 10 of Ord. 93-872 to be §§ 6, 7, 8 and 9; repeals § 6 of Ord. 93-872, burglar and fire alarm systems (10.60)
93-873	Approves grant for operation of material and infant care program (Special)
93-874	Approves lease for certain warehouse storage space (Special)
93-875	Approves lease agreement (Special)
93-876	Readopts the Code of the Metropolitan Government of Nashville and Davidson County, Tennessee, prepared by Book Publishing Company, including supplemental and replacement pages, containing ordinances enacted on or before 8/18/93; requires copies to be on file, designates penalties for code violations (Not codified)
93-877	Abandons certain public utility and drainage easements (Special)
93-878	(Deferred)
93-879	Amends zoning map (Special)

Ordinance Number	Disposition
93-880	Authorizes construction under right-of-way (Special)
93-881	(Failed)
93-882	Repeals and replaces Ch. 2.104, urban forestry (2.104)
Amdt. 1	Adds subsection (C) to § 8 of Ord. 93-882 (2.104)
93-883	Approves grant for SBA Tree Planting Program (Special)
93-884	Amends §§ 10.28.020, 10.28.060 and 10.28.070, vegetation control board (10.28)
Amdt. 1	Repeals and replaces § 1 of Ord. 93-884 (10.28)
93-885	Confirms designation of Fire Chief and his designees to request or authorize a response to a request for emergency fire and/or medical assistance (Special)
93-886	Repeals Ord. 87-86 and replaces it with new emergency assistance policies and procedures for the Department of Fire and the City of Brentwood Fire Department (Special)
93-887	Approves grant for the Urban and Community Forestry Grant Assistance Program (Special)
93-888	Authorizes contract for a grant to help fund the victim intervention program (Special)
93-889	Rezone (Special)
93-890	Amends zoning map (Special)
93-891	(Withdrawn)
93-892	Adds subsections 17.32.060(H) and (I); amends §§ 17.124.070, 17.124.090—17.124.180 and 17.124.200, zoning (Repealed by 96-555)
93-893	Rezone (Special)
93-894	Amends zoning map (Special)
93-895	Amends zoning map (Special)
93-896	Amends zoning map (Special)
93-897	Amends zoning map (Special)
93-898	Rezone (Special)
93-899	Amends zoning map (Special)
93-900	Rezone (Special)
93-901	Amends zoning map (Special)
93-902	Amends zoning map (Special)
93-903	Rezone (Special)
93-904	Authorizes construction under right-of-way (Special)
93-905	Permits construction and maintenance of certain directional sign (Special)
93-906	(Withdrawn)
93-907	Street closure, vacation, abandonment (Special)
93-908	Acquisition of property (Special)
93-909	Acquisition of property (Special)
OCUS; repeals Ch. 2.132 (Repealer)	
3-912	Approves amdt. 16 to urban renewal plan for the university center urban renewal area (Special)
93-913	Street and alley closure (Special)
Amdt. 1	Repeals and replaces § 3 of Ord. 94-913 (Special)
94-914	Repeals and replaces § 10.20.191, disposal and sale of mulch (10.20)
94-915	Acquisition of property (Special)
94-916	Approves grant to implement the Urban and Community Forestry Grant Assistance Program (Special)
94-917	Rezone (Special)
94-918	Amends zoning map (Special)
94-919	Rezone (Special)
Amdt. 1	Amends § 1 of Ord. 94-919 (Special)
94-920	Names the Rev. Kelly Miller Smith Bridge (Special)
Amdt. 1	Amends § 1 of Ord. 94-920 (Special)
94-921	(Vetoed)
94-922	Easement abandonment (Special)
94-923	Approves contract with State of Tennessee, Tennessee Emergency Agency (Special)
94-924	Repeals and replaces §§ 15.32.190(B) and 15.44.040(B), water and sewer billing charges (15.32, 15.44)
Amdt. 1	Amends subparagraph C of § 1 of Ord. 94-924 (15.32, 15.44)
94-925	Authorizes metropolitan government to accept certain sum to aid in construction of water and sewer lines (Special)
94-926	Acquisition of property (Special)
94-927	Easement abandonment (Special)
94-928	Authorizes metropolitan government to accept certain sum to aid in construction of water line (Special)
94-929	(Withdrawn)
94-930	Designates Division IV of the Metropolitan General Sessions Court as the Environmental Court (Not codified)
94-931	Sale of surplus property (Special)
94-932	Sale of surplus property (Special)
94-933	Sale of surplus property (Special)
94-934	Sale of surplus property (Special)
94-935	Sale of surplus property (Special)

Ordinance Number	Disposition
94-936	17.80.020(A)(3), 17.88.040(D)(1) and (2), and 17.104.030(A)(3); amends §§ 17.12.020(B)(9), 17.12.030(D), 17.24.030(A)(1), 17.24.030(A)(2), 17.32.130(B), 17.32.230(C), 17.48.030(B)(1), 17.72.090(C) and Table 17.72.090, 17.96.070(A)(1), 17.96.080(B)(2), 17.96.100 and Table 17.100.060; repeals and replaces §§ 17.12.070(K), 17.12.070(L), 17.44.030(A)(9), 17.124.070, 17.124.080; repeals § 17.44.030(A)(10) and renumbers (A)(11) and (12) to be (A)(10) and (11), repeals § 17.60.030(A)(2) and (3) and renumbers (A)(4)—(A)(13) to be (A)(2)—(A)(11), repeals § 17.80.030(A)(1) and renumbers (A)(2) and (3) to be (A)(1) and (2), zoning (Repealed by 96-555)
Amdt. 1	Adds § 17.124.080(H); amends § 17.124.080(C) and repeals and replaces § 17.124.080(B) all found in Subsection 24 of Ord. 94-936, zoning (Repealed by 96-555)
94-937	Adds § 17.68.035 and amends § 17.60.020(A)(1), zoning (Repealed by 96-555)
94-938	Amends the footnote to § 17.60.020, zoning (Repealed by 96-555)
94-939	Street closure (Special)
94-940	Street name change (Special)
94-941	(Failed)
94-942	Authorizes construction under right-of-way (Special)
94-943	Authorizes the Industrial Development Board to negotiate and accept from Thomas Nelson, Inc. certain payments in lieu of certain additional ad valorem taxes (Special)
94-944	Easement (Special)
94-945	Alley closure and easement abandonment (Special)
94-946	(Failed)
94-947	(Failed)
94-948	Amends zoning map (Special)
Amdt. 1	Amends § 1 of Ord. 94-948 (Special)
94-949	Rezone (Special)
94-950	Rezone (Special)
94-951	Rezone (Special)
94-952	Rezone (Special)
94-953	Rezone (Special)
94-954	Amends zoning map (Special)
94-955	Rezone (Special)
94-956	(Withdrawn)
94-957	Rezone (Special)
94-958	(Withdrawn)
94-959	Memorandum of Agreement with Vanderbilt University (Special)
94-960	Adds § 13.24.090[B](4), alcoholic beverages (13.24)
94-961	Sale of surplus property (Special)
94-962	Alley closure (Special)
94-963	Repeals and replaces Section 2(b) of Ord. 90-1097 (Special)
94-964	(Defeated)
94-965	Repeals and replaces § 3.40.050(B) and (D), minimum service pension benefit (3.40)
94-966	Adds § 4.12.220, solid waste collection (4.12)
Amdt. 1	Repeals and replaces the language of Ord. 94-966, solid waste collection (4.12)
94-967	Business transactions after a natural disaster (6.82)
94-968	Repeals and replaces §§ 2.148.010(A), (B) and (C) and 2.148.020, tourist commission (2.148)
94-969	Easement (Special)
94-970	Easement abandonment (Special)
94-971	Agreement between U.S. Army Corps of Engineers and the metropolitan government concerning the provision of law enforcement services in the J. Percy Priest Lake and Old Hickory Lake areas (Special)
94-972	Approves contract between the metropolitan government and the Department of Health for administrative support to the chief medical examiner for 1993 (Special)
94-973	Approves grant to the metropolitan government of Nashville and Davidson County for use by the district attorney's office for systems improvement and approving matching funds from the metropolitan government (Special)
94-974	Approves grant to the metropolitan government for the Harpeth Youth Soccer Association for the purpose of providing financial assistance for athletic fields located in Bellevue (Special)
94-975	Authorizes construction under right-of-way (Special)
94-976	Street name change (Special)
94-977	Amends § 17.16.110(A), zoning (Repealed by 96-555)
94-978	Rezone (Special)
94-979	Rezone (Special)
94-980	Rezone (Special)
Amdt. 1	Amends caption and § 1 of Ord. 94-980 (Special)
94-981	Rezone (Special)
94-982	Amends zoning map (Special)

Ordinance Number	Disposition
94-983	Rezone (Special)
94-984	Amends zoning map (Special)
94-985	(Withdrawn)
94-986	(Withdrawn)
94-987	Rezone (Special)
94-988	Repeals and replaces § 10.20.070(A), solid waste collection (10.20)
94-989	(Withdrawn)
94-990	(Failed)
94-991	Authorizes certain Joint Memorandum of Understanding concerning Nashville Farmers Market (Special)
94-992	Authorizes contract for the purchase of services from Legal Services of Middle Tennessee, Inc. by Metropolitan Social Services Commission (Special)
94-993	Adds subsections (G) and (H) to § 2.112.040, arts commission (2.112)
94-994	Approves lease agreement (Special)
94-995	(Withdrawn)
94-996	Sale of surplus property (Special)
94-997	Authorizes acceptance of proposal regarding right-of-way acquisition and construction of certain project (Special)
94-998	Authorizes acceptance of proposal regarding right-of-way acquisition and construction of certain project (Special)
94-999	Authorizes acceptance of proposal regarding right-of-way acquisition and construction of certain project (Special)
94-1000	Approves grant for reimbursement of salaries and administrative expenses for fiscal year 1994 (Special)
94-1001	Adds subsection (6)[F] to § 17.110.200, on-premises signs (Repealed by 96-555)
Amdt. 1	Amends § 1 of Ord. 94-1001 and repeals and replaces § 2 of Ord. 94-1001, on-premises signs (Repealed by 96-555)
94-1002	Amends § 17.110.570(1)[A], sign regulations (Repealed by 96-555)
Amdt. 1	Repeals and replaces § 2 of Ord. 94-1002, sign regulations (Not codified)
94-1003	Amends § 17.92.220, common open space (Withdrawn)
94-1004	Amends zoning map (Special)
94-1005	Amends zoning map (Special)
94-1006	Amends zoning map (Special)
94-1007	Rezone (Special)
94-1008	(Defeated)
94-1009	(Defeated)
94-1010	(Withdrawn)
94-1011	Rezone (Special)
94-1012	Amends zoning map (Special)
94-1013	Rezone (Special)
94-1014	Rezone (Special)
94-1015	Amends zoning map (Special)
94-1016	Rezone (Special)
94-1017	Amends zoning map (Special)
94-1018	Rezone (Special)
94-1019	Rezone (Special)
94-1020	Adds § 17.12.030 (Q); amends Table 17.72.100A and Table 17.72.220, zoning (Repealed by 96-555)
94-1021	Street abandonment (Special)
94-1022	(Vetoed)
94-1023	Alley closure and acceptance for maintenance of new alley (Special)
94-1024	Alley closure (Special)
94-1025	Amends zoning map (Special)
94-1026	Approves the development of low rent scattered site housing (Not codified)
Amdt. 1	Amends Exhibit A to Ord. 94-1026 (Not codified)
94-1027	Street and alley closure (Special)
94-1028	Authorizes metropolitan department of law to settle bankruptcy claims and to execute releases or assignments as part of such bankruptcy settlements (Special)
94-1029	Grants certain utility and access easements (Special)
94-1030	Acquisition of property for utility easements (Special)
94-1031	Acquisition of property for utility easements (Special)
94-1032	Creates positions of correctional officer I, II, III and IV for Davidson County Sheriff's Office (Special)
Amdt. 1	Adds a § 3 to Ord. 94-1032 and amends language of § 2 (Special)
94-1033	Authorizes contract for construction of certain utilities (Special)
94-1034	Authorizes contract for construction of certain utilities (Special)
94-1035	Prohibition of smoking in metropolitan buildings (10.18)
94-1036	Adds § 10.60.080(F); repeals and replaces § 10.60.080(B), burglar/fire alarms (10.60)
94-1037	(Withdrawn)
94-1038	(Failed)
94-1039	Sale of surplus property (Special)
94-1040	Approves certain Mutual Aid Agreement (Special)
94-1041	Authorizes acceptance of a proposal relating to Middle Fork of Browns Creek (Special)
94-1042	Approves a grant for use in connection with the prevention of alcohol and drug abuse (Special)

Ordinance Number	Disposition
94-1043	Authorizes second amendment to certain contract between metropolitan government and the Nashville Airport Authority (Special)
94-1044	Street closure (Special)
94-1045	Alley abandonment (Special)
94-1046	(Failed)
94-1047	Authorizes acquisition of certain property (Special)
94-1048	Street closure and abandonment (Special)
94-1049	Rezone (Special)
94-1050	Rezone (Special)
94-1051	Street name change (Special)
94-1052	Policy for naming of public buildings (13.26)
94-1053	Right-of-way vacation, closure and abandonment (Special)
Amdt. 1	Adds a new § 2 and renumbers present §§ 2 and 3 to be §§ 3 and 4; amends § 1 of Ord. 94-1053 (Special)
94-1054	Memorandum of Agreement with Vanderbilt University to provide medical students with experience in clinical training (Special)
94-1055	Creates county medical examiner's office (2.38)
94-1056	Employee assistance program; repeals § 3.08.070 (3.64)
Amdt. 1	Repeals and replaces "Bill No. 086-1576" to be "Bill No. 086-1567" and repeals and replaces § 5 with a new § 5 (3.64)
94-1057	Authorizes appropriation for tourism promotion mailings and authorizes mayor to sign amendment to the contract between Nashville Area Chamber of Commerce and the metropolitan government (Special)
94-1058	Authorizes construction over right-of-way (Special)
94-1059	Approves agreement relating to construction and operation of Mansker Creek Pump Station, trunk sewer and force main (Special)
94-1060	Approves certain lease agreement (Special)
94-1061	Authorizes acquisition of certain property (Special)
94-1062	Authorizes acceptance of certain easements and sewer facilities from the Old Hickory Utility District. (Special)
94-1063	Repeals and replaces the language in § 11A of Ord. 93-821, solid waste collection (10.20)
94-1064	Adopts Capital Improvement Budget and Program 1994—95 through 1999—2000 (Not codified)
Amdt. 1	Amends Ord. 94-1064 (Not codified)
Amdt. 2	Amends Ord. 94-1064 (Not codified)
Amdt. 3	Amends Ord. 94-1064 (Not codified)
Amdt. 4	Amends Ord. 94-1064 (Not codified)
Amdt. 5	Amends Ord. 94-1064 (Not codified)
Amdt. 6	Amends Ord. 94-1064 (Not codified)
Amdt. 7	Amends Ord. 94-1064 (Not codified)
Amdt. 8	Amends Ord. 94-1064 (Not codified)
Amdt. 9	Amends Ord. 94-1064 (Not codified)
Amdt. 10	Amends Ord. 94-1064 (Not codified)
Amdt. 11	Amends Ord. 94-1064 (Not codified)
Amdt. 12	Amends Ord. 94-1064 (Not codified)
94-1065	Adopts Budget Ordinance (Not codified)
Amdt. 1	Amends Ord. 94-1065 (Not codified)
Amdt. 2	Amends Ord. 94-1065 (Not codified)
Amdt. 1 to Amdt. 2	Amends Amendment 2 of Ord. 94-1065 (Not codified)
Amdt. 3	Amends Ord. 94-1065 (Not codified)
94-1066	Establishes tax levy in the General Services District for 1994—95 and declares amount required for the annual operating budget of the Urban Services District (Not codified)
94-1067	Approves Amdt. 1 to the personal service contract with Vanderbilt University for certain medical consultant services (Special)
94-1068	Alley closure (Special)
94-1069	(Withdrawn)
94-1070	Rezone (Special)
94-1071	Adds language to § 17.12.030(D); repeals and replaces § 17.12.070(P), zoning (Repealed by 96-555)
94-1072	Authorizes Tennessean to construct, install and maintain a certain ground-water monitoring well (Special)
94-1073	Alley closure and abandonment (Special)
94-1074	Creates office of emergency management (2.10)
94-1075	Amends Ord. 94-944 by correcting an incorrect parcel number (Special)
94-1076	(Withdrawn)
94-1077	(Withdrawn)
94-1078	Repeals and replaces § 3.04.010, residency requirements (3.04)
94-1079	Authorizes conveyance of land (Special)
94-1080	Easement and sanitary sewer abandonment (Special)
94-1081	Approves amendment to certain grant (Special)
94-1082	Readopts The Code of the Metropolitan Government of Nashville and Davidson County, Tennessee, prepared by Book Publishing Company, including supplemental and replacement pages, containing ordinances enacted on or before February 1, 1994; requires copies to be on file; designates penalties for code violations (Not codified)

Ordinance Number	Disposition
94-1083	Authorizes acceptance of certain solid waste management grant (Special)
94-1084	(Withdrawn)
94-1085	Rezone (Special)
94-1086	Amends zoning map (Special)
Amt. 1	Amends Ord. 94-1086 by incorporating by reference Exhibit A (Special)
94-1087	Approves a termination agreement for the Magic Consortium; repeals Ord. 91-1671 (Special)
94-1088	Approves contract between metropolitan government and the emergency communications district for 1994—95 fiscal year (Special)
94-1089	Approves contract for promotion of tourism and convention business and the expenditure of funds (Special)
94-1090	(Failed)
94-1091	Amends zoning map (Special)
94-1092	Rezone (Special)
94-1093	Rezone (Special)
94-1094	Rezone (Special)
94-1095	Rezone (Special)
94-1096	Rezone (Special)
94-1097	Rezone (Special)
94-1098	Rezone (Special)
Amdt. 1	Amends caption and § 1 of Ord. 94-1098 (Special)
94-1099	Amends zoning map (Special)
94-1100	Rezone (Special)
94-1101	Amends zoning map (Special)
94-1102	Creates positions of school services officer trainee, school services officer I, school services officer II and police records manager (Not codified)
94-1103	Franchises for fiber optic communications services (6.26)
Amdt. 1	Amends §§ 2.9, 2.12, 2.17, 3.1, 3.3(B), 3.3(D), 5, 6.1, 6.5, 8, 11, 13, 15, 19.2, 23, 24.2, 25.2, 25.4, 26.3, 28, 29, 31, 31.1, 32, 33 and 34 (6.26)
94-1104	Adds §§ 17.04.224, 17.04.265, 17.04.393, 17.04.943, 17.04.947, 17.04.955, 17.04.1015, 17.04.1287, 17.04.1289 and Ch. 17.18, tree protection (Repealed by 96-555)
94-1105	Rezone (Special)
94-1106	Abandonment of a portion of a sewer (Special)
94-1107	Accepts grant for certain judge to attend 1994 traffic court seminar (Special)
94-1108	Approves grant and matching funds for use and benefit of various substance abuse and criminal justice programs (Special)
94-1109	Sale of surplus property (Special)
94-1110	Sale of surplus property (Special)
94-1111	Approves contract to provide psychological examination services to sheriff's department (Special)
94-1112	Approves grant for public library construction to the Hadley Park Branch (Special)
94-1113	Adds §§ 10.64.010(J), 10.64.010(K) and 16.08.012(C); amends 16.08.012(A), bed and breakfast homestays (16.08)
Amdt. 1	Amends § 1 of Ord. 94-1113 (Repealed by 94-1245)
94-1114	Alley closure (Special)
94-1115	Alley closure (Special)
94-1116	Easement (Special)
94-1117	Reestablishes ranks and grades of officers and employees of department of fire; repeals Ords. 77-739 and 91-1488 (Repealer)
94-1118	(Vetoed)
94-1119	Prohibits smoking in buildings of the Metropolitan Government (10.18)
Amdt. 1	Adds new § 7 to Ord. 94-1119 and renumbers present § 7 to become § 8 (Not codified)
94-1120	Approves certain lease agreement (Special)
94-1121	Approves contract for the Metropolitan General Sessions Court with the Kelly Miller Smith Center Against Abusive Behavior (Special)
94-1122	(Withdrawn)
94-1123	Approves grant for victim assistance funds for use in the police department's victim intervention program (Special)
94-1124	Approves lease agreement (Special)
94-1125	Authorizes acquisition of property (Special)
94-1126	Amends § 4 of Ord. 92-339, lease agreement (Special)
Amdt. 1	Adds a new § to Ord. 94-1126; amends § 1 of same ord. and renumbers § 2 to be § 3 (Special)
94-1127	Amends zoning map (Special)
94-1128	Rezone (Special)
94-1129	Adds new Ch. 2.132, §§ 2.132.010—2.132.080, human relations commission (2.132)
94-1130	Approves contract between Metropolitan General Sessions Court with Peace, Inc. (Special)
94-1131	(Withdrawn)
94-1132	Approves certain contract for inmate litter pickup (Special)
94-1133	Approves certain contract with Phoenix Healthcare of Tennessee, Inc. (Special)

Ordinance Number	Disposition
94-1134	Approves certain grant for the use and benefit of public libraries (Special)
94-1135	Approves certain grant for use in connection with the provision of Title IV-D child support services (Special)
94-1136	Creates fiscal affairs manager position for the department of fire (Not codified)
94-1137	Authorizes acquisition of property for utility easements (Special)
94-1138	Authorizes construction beneath certain rights-of-way (Special)
94-1139	Alley closure (Special)
94-1140	Rezone (Special)
94-1141	Rezone (Special)
94-1142	(Defeated)
94-1143	Authorizes certain contract between TDOS and the county clerk (Special)
94-1144	Names new fire station for Martin M. Coleman (Special)
94-1145	Amends certain contract with Department of Correction (Special)
94-1146	Approves certain lease agreement (Special)
94-1147	Authorizes acquisition of property for acquiring utility easements (Special)
94-1148	Authorizes acquisition of property for acquiring utility easements (Special)
94-1149	Street name change (Special)
94-1150	Rezone (Special)
94-1151	Rezone (Special)
94-1152	Amends zoning map (Special)
94-1153	Rezone (Special)
94-1154	Amends zoning map (Special)
94-1155	(Withdrawn)
94-1156	(Withdrawn)
94-1157	Rezone (Special)
94-1158	Rezone (Special)
94-1159	Rezone (Special)
Amdt. 1	Amends certain language in the caption and § 1 of Ord. 94-1159 (Special)
94-1160	(Withdrawn)
94-1161	Amends §§ 10.56.010, 10.56.020, 10.56.040, 10.56.090, 10.56.110, 10.56.120, 10.56.130, 10.56.290 and 10.56.300, air pollution (10.56)
94-1162	Repeals and replaces subsection 6.h of Ord. 93-790, air pollution (10.56)
94-1163	Authorizes acquisition of property for acquiring utility easements (Special)
94-1164	Rezone (Special)
94-1165	(Defeated)
94-1166	Rezone (Special)
94-1167	(Withdrawn)
94-1168	Street name change (Special)
94-1169	(Withdrawn)
94-1170	Street closure (Special)
94-1171	(Withdrawn)
94-1172	(Withdrawn)
94-1173	(Withdrawn)
94-1174	Adds new subsection B to § 12.36.110 and reletters the present B to be C, vehicles and traffic (12.36)
Amdt. 1	Adds a new § 2 to Ord. 94-1174 and renumbers § 2 to be § 3, vehicles and traffic (12.36)
94-1175	Street name change (Special)
94-1176	(Defeated)
94-1177	Authorizes certain agreement with US Corps of Engineers for construction of a stream bank protection project (Special)
94-1178	Amends certain lease agreement with Lindsley Avenue Partnership (Special)
94-1179	Authorizes the acquisition of property for Ridgemere Court improvements (Special)
94-1180	Repeals and replaces subsection C of § 12.08.140, vehicles and traffic (12.08)
94-1181	Amends §§ 10.20.332 and 10.24.180, littering (Repealed by 95-1329)
94-1182	Amends Ord. 78-1162 by approving an extension to a certain cable television franchise (Not codified)
94-1183	Grants franchise to US Signal of Nashville, L.P., to construct, maintain and operate a telecommunications system (Special)
94-1184	Grants franchise to Hyperion of Tennessee, L.P., to construct, maintain and operate a telecommunications system (Special)
94-1185	Grants franchise to ICG Access Services, Inc., to construct, maintain and operate a telecommunications system (Special)
94-1186	Rezone (Special)
94-1187	Street closure and easement abandonment (Special)
94-1188	Grants franchise to Metro Access Networks, Inc., to construct, maintain and operate a telecommunications system (Special)
94-1189	Adopts official property identification maps (Not codified)
94-1190	(Withdrawn)
94-1191	Rezone (Special)
94-1192	Grants franchise to Access Transmission Services, Inc., to construct, maintain and operate a telecommunications system (Special)
94-1193	Approves certain grant contract for provision of Juvenile Court Case Support Services (Special)

Ordinance Number	Disposition
94-1194	Authorizes metropolitan government to pay Mid-South Press, Inc., to pay certain sum to aid in certain water system improvements (Special)
94-1195	Amends §§ 17.60.020(B)(14), 17.124.070 and 17.124.070, zoning (Repealed by 96-555)
Amdt. 1	Amends caption to Ord. 94-1195; repeals language from the second WHEREAS and repeals subsection 1 of § 1 of same ord., zoning (Repealed by 96-555)
94-1196	Amends zoning map (Special)
94-1197	Utility and easement abandonment (Special)
Amdt. 1	Deletes § 3 of Ord. 94-1197 and adds new §§ 3 and 4 (Special)
94-1198	Street name change (Special)
94-1199	Rezone (Special)
94-1200	Rezone (Special)
94-1201	Cancels Commercial (General) Planned Unit Development District abutting certain area (Special)
94-1202	Rezone (Special)
Amdt. 1	Attaches Exhibit A to Ord. 94-1202, reducing amount of land for the CS district (Special)
94-1203	Rezone (Special)
94-1204	Rezone (Special)
94-1205	(Withdrawn)
94-1206	Rezone (Special)
94-1207	Rezone (Special)
94-1208	(Withdrawn)
94-1209	Adds language to § 1 of Ord. 86-1534 as amended by Ord. 90-1407, appropriations from general fund reserve fund (5.04)
94-1210	Approves certain lease agreement with Oasis Center, Inc., for use of certain cottage (Special)
94-1211	Right-of-way closure (Special)
Amdt. 1	Amends caption and § 1 of Ord. 94-1211 (Special)
94-1212	Streets closure and easement abandonment (Special)
94-1213	Approves amendment to certain lease with the Martha O'Bryan Center (Special)
94-1214	Approves certain grant for general operating support for the Metropolitan Arts Commission (Special)
94-1215	(Withdrawn)
94-1216	Amends zoning map (Special)
Amdt. 1	Repeals and replaces the landscape sketch attached to Ord. 94-1216 (Special)
94-1217	(Withdrawn)
94-1218	Amends zoning map (Special)
94-1219	Rezone (Special)
94-1220	Rezone (Special)
94-1221	(Withdrawn)
94-1222	Rezone (Special)
94-1223	(Withdrawn)
94-1224	Approves certain contract along with matching funds for hazardous materials analysis and risk assessment (Special)
94-1225	Approves two grants for tree planting (Special)
94-1226	Amends §§ 6.20.150(E)(1) and (F), 6.52.040, 6.52.100, 6.52.110(B) and 6.52.140; repeals and replaces §§ 6.52.220, 13.20.030, 16.04.090, 16.16.780(C) and (D) and 16.28.100, contractors' and subcontractors' bond requirements; exam fee for journeyman plumber (6.20, 6.52, 16.04, 16.16, 16.28)
94-1227	Adopts the official street and alley acceptance and maintenance map (Not codified)
94-1228	(Withdrawn)
94-1229	Approves the acceptance of certain facilities into the public water and sewer systems (Special)
94-1230	Authorizes receipt of certain sum from Madison Academy to aid in construction of certain sewer improvements (Special)
94-1231	Authorizes receipt of certain sum from Industrial Fire and Safety Equipment Co., Inc., to aid in construction of certain sewer improvements (Special)
94-1232	Authorizes receipt of certain sum from Martin P. Bennett to aid in construction of certain sewer improvements (Special)
94-1233	Street closure (Special)
94-1234	Rezone (Special)
94-1235	Rezone (Special)
Amdt. 1	Amends language of Ord. 94-1235 by deleting certain property from those properties being rezoned (Special)
94-1236	Graffiti (11.26)
Amdt. 1	Repeals § 5 of Ord. 94-1236 and renumbers the remaining sections accordingly, graffiti (11.26)
94-1237	Adds language to § 12.68.180(A), speed limits (12.68)
94-1238	Names a private road (Special)
94-1239	Repeals and replaces § 15.32.160, billing of unmetered fire service (15.32)
94-1240	Repeals § 15.32.090 (Repealer)
94-1241	Amends §§ 15.48.150 and 15.48.180, water and sewer billing (15.48)

Ordinance Number	Disposition
94-1242	Amends § 15.48.020(A); repeals and replaces § 15.48.090, water and sewer billing (15.48)
94-1243	Amends § 15.48.250, water and sewer service billing procedures (15.48)
Amdt. 1	Amends § 1 of Ord. 94-1243 (15.48)
94-1244	Authorizes utility service agreement with Old Hickory Utility District (Special)
94-1245	Repeals and replaces § 10.64.010, fire prevention code (Repealed by 98-1445)
94-1246	Approves certain grant between FEMA and metro government (Special)
94-1247	(Withdrawn)
94-1248	Street closure (Special)
94-1249	Rezone (Special)
94-1250	Amends zoning map (Special)
94-1251	(Withdrawn)
94-1252	Rezone (Special)
94-1253	Rezone (Special)
94-1254	Rezone (Special)
94-1255	Amends zoning map (Special)
94-1256	Rezone (Special)
94-1257	Authorizes metropolitan mayor to submit a consolidated plan for housing and community development programs to the US Department of Housing and Urban Development (Not codified)
94-1258	Easement abandonment (Special)
94-1259	Alley closure (Special)
94-1260	Readopts code (1.01)
94-1261	Easement abandonment (Special)
94-1262	Easement abandonment (Special)
94-1263	Authorizes acquisition of property for certain project (Special)
94-1264	Authorizes certain utility construction contract (Special)
94-1265	Authorizes acquisition of property for acquiring utility easements (Special)
94-1266	Authorizes acquisition of land for certain project (Special)
94-1267	Approves certain contract in lieu of performance bond (Special)
94-1268	Amends zoning map (Special)
94-1269	Alley closure (Special)
94-1270	Street closure (Special)
94-1271	Amends zoning map (Special)
Amdt. 1	Adds language to § 1 of Ord. 94-1271 (Special)
94-1272	Rezone (Special)
94-1273	Rezone (Special)
94-1274	Rezone (Special)
94-1275	Rezone (Special)
94-1276	(Withdrawn)
94-1277	Amends zoning map (Special)
94-1278	Amends zoning map (Special)
94-1279	Rezone (Special)
94-1280	Amends zoning map (Special)
94-1281	Rezone (Special)
94-1282	Rezone (Special)
94-1283	Rezone (Special)
94-1284	Amends zoning map (Special)
94-1285	Rezone (Special)
94-1286	Amends zoning map (Special)
94-1287	Amends zoning map (Special)
94-1288	(Withdrawn)
94-1289	Rezone (Special)
94-1290	Public utility and drainage easements closure (Special)
94-1291	Approves grant to assist in publication of guide to Nashville architecture (Special)
94-1292	Approves publication agreement relative to guide to Nashville architecture (Special)
94-1293	Authorizes acquisition of property for acquiring utility easements (Special)
94-1294	Authorizes acquisition of property for acquiring utility easements (Special)
94-1295	(Withdrawn)
94-1296	(Withdrawn)
94-1297	Authorizes execution of certain memorandum of understanding (Special)
95-1298	Accepts proposal for certain improvements to Murfreesboro Road (Special)
95-1299	Accepts proposal for certain improvements to Bell Road (Special)
95-1300	Accepts proposal for certain intersection improvements (Special)
95-1301	Authorizes grant for certain public radio signal extension (Special)
95-1302	(Withdrawn)
95-1303	Alley closure (Special)
95-1304	Rezone (Special)
95-1305	Rezone (Special)
95-1306	Rezone (Special)
95-1307	Rezone (Special)
95-1308	Accepts title to certain parcel of real property (Special)
95-1309	Approves contract for uplink and transmission services to certain radio station (Special)
95-1310	Sewer easement abandonment (Special)
95-1311	Equipment inspection policy (2.202)
Amdt. 1	Amends §§ 1, 2 of Ord. 95-1311, equipment inspection (2.202)
95-1312	Street closure (Special)
Amdt. 1	Repeals and replaces § 2 of Ord. 95-1312 (Special)
95-1313	Street and alley closure (Special)
95-1314	Sale of surplus property (Special)

Ordinance Number	Disposition
94[95]-1315	Amends § 7.08.090(A)(1), beer and alcoholic beverages of less than five percent (7.08)
Amdt. 1	Adds language to § 1 of Ord. 95-1315, alcoholic beverages (7.08)
Amdt. 2	Adds language to § 1 of Ord. 95-1315, alcoholic beverages (7.08)
Amdt. 3	Adds language to § 1 of Ord. 95-1315, alcoholic beverages (7.08)
Amdt. 4	Adds language to § 1 of Ord. 95-1315, alcoholic beverages (7.08)
95-1316	Amends § 10.18.010, prohibition of smoking in metropolitan buildings (10.18)
95-1317	Street closure (Special)
95-1318	Rezone (Special)
95-1319	Rezone (Special)
95-1320	(Withdrawn)
95-1321	(Withdrawn)
95-1322	Adds § 16.08.016; amends §§ 13.16.030, 16.08.010, 16.08.012, 16.08.014, 16.12.130, 16.12.210, 16.12.240, 16.12.260, 16.16.190, 16.16.230, 16.20.240, 16.28.090, 16.28.170, 16.48.010; repeals and replaces §§ 16.12.120 and 16.28.030, building codes (Repealed by 95-1487)
Amdt. 1	Changes language of § 90 of Ord. 95-1322 (Not codified)
95-1323	Compliance with code provisions (2.206)
Amdt. 1	Amends language of § 1 of Ord. 95-1323 (2.206)
95-1324	Amends § 16.28.110(E) and (F); repeals and replaces § 16.28.120, building permits (16.28)
95-1325	Acquisition of property for use in certain public project (Special)
Amdt. 1	Changes language in § 1 of Ord. 1325 (Special)
95-1326	(Failed)
95-1327	Approves sale of surplus property (Special)
95-1328	Approves grant to install lighting at certain park (Special)
95-1329	Adds §§ 12.84.030 and 16.04.172; amends §§ 2.196.100, 4.20.110, 6.80.320 (D), 11.28.140(A) and 12.84.020; repeals and replaces §§ 1.01.030, 15.12.240, 15.60.470, 15.64.220, 17.16.210, maximum penalties and fines; repeals 1.24.010, 6.32.010(C), 8.08.070, 10.20.332, 10.24.180, 10.64.050 and 13.08.070(C) (1.01, 2.196, 4.20, 11.28, 12.48, 15.12, 15.64, 16.04)
Amdt. 1	Amends caption and Whereas clause of Ord. 95-1329 and § 1(B) of Ord. 95-1329; deletes § 13 from Ord. 95-1329 and renumbers § 14 to be § 13 (1.01)
95-1330	(Withdrawn)
95-1331	Approves transfer of certain franchise (Special)
Amdt. 1	Amends language of Ord. 95-1331 (Special)
95-1332	(Withdrawn)
95-1333	(Withdrawn)
95-1334	(Failed)
95-1335	Authorizes construction under certain right-of-way (Special)
95-1336	Easements abandonment (Special)
95-1337	Amends zoning map (Special)
95-1338	Rezone (Special)
95-1339	(Withdrawn)
95-1340	(Withdrawn)
95-1341	Amends zoning map (Special)
95-1342	(Withdrawn)
95-1343	Alleys closure (Special)
95-1344	Amends zoning map (Special)
Amdt. 1	Amends caption of Ord. 95-1344 (Special)
95-1345	Rezone (Special)
95-1346	(Withdrawn)
95-1347	Rezone (Special)
95-1348	Rezone (Special)
95-1349	Amends zoning map (Special)
95-1350	Rezone (Special)
95-1351	Rezone (Special)
Amdt. 1	Amends language of Ord. 95-1351 (Special)
95-1352	Amends zoning map (Special)
95-1353	Readopts The Code of the Metropolitan Government of Nashville and Davidson County, Tennessee, containing ordinances enacted on or before August 2, 1994, two copies of which are on file in the office of the metropolitan clerk; designates penalties for code violations (1.01)
Amdt. 1	Amends language of Ord. 95-1353 (Not codified)
95-1354	(Withdrawn)
95-1355	Approves certain base agreement for space at National Guard Armory (Special)
Amdt. 1	Adds a new § 2 to Ord. 95-1355 and renumbers existing § 2 to be § 3 (Special)
95-1356	(Withdrawn)
95-1357	Creates position of Finance Associate Director (Special)
95-1358	Sale of surplus property (Special)
95-1359	Declares certain properties to be surplus; authorizes quitclaim deed (Special)
95-1360	Amends § 12.40.090(C), parking (12.40)
95-1361	(Withdrawn)
95-1362	Repeals and replaces § 17.16.210, zoning (Repealed by 96-555)

Ordinance Number	Disposition
95-1363	Approves certain grant for land acquisition; approves expenditure of matching funds (Special)
95-1364	Approves certain grant for reimbursement of salaries and administrative expenses for office of energy management (Special)
95-1365	Approves certain contract regarding installation and maintenance of traffic signal (Special)
95-1366	Approves certain contract regarding extension of Oaks Drive (Special)
Amdt. 1	Repeals and replaces contract attached to Ord. 95-1366 (Special)
95-1367	(Withdrawn)
95-1368	Repeals and replaces Ch. 6.08, community antenna television (6.08)
95-1369	Authorizes acquisition of property (Special)
95-1370	Alleys closure (Special)
95-1371	Authorizes construction under certain right-of-way (Special)
95-1372	Authorizes construction under certain right-of-way (Special)
95-1373	Accepts donation for certain hospital equipment and free air time needed for transmission of EKG monitoring (Special)
95-1374	Amends § 16.08.010(B), building codes (Repealed by 95-1487)
95-1375	Amends Ord. 93-543 by expanding the premises of the lease (Special)
95-1376	Amends Ord. 94-1125 approving acquisition of property (Special)
95-1377	Authorizes metro contribution to certain sewer improvement project (Special)
95-1378	Authorizes contract for provision of prevention services by juvenile court (Special)
95-1379	Grants franchise for cable communications system (Special)
95-1380	Authorizes construction under certain right-of-way (Special)
95-1381	Authorizes construction under certain right-of-way (Special)
Amdt. 1	Adds language to § 4 of Ord. 95-1381 (Special)
95-1382	Rezone (Special)
95-1383	Rezone (Special)
95-1384	Rezone (Special)
95-1385	Rezone (Special)
95-1386	(Defeated)
95-1387	(Defeated)
95-1388	Amends zoning map (Special)
95-1389	(Defeated)
95-1390	Amends zoning map (Special)
95-1391	Rezone (Special)
95-1392	Amends zoning map (Special)
Amdt. 1	Amends § 1 of Ord. 95-1392 (Special)
95-1393	Amends zoning map (Special)
95-1394	(Withdrawn)
95-1395	Acquisition of property for new high school (Special)
95-1396	Adds § 2.24.240(I), department of finance (2.24)
Amdt. 1	Repeals and replaces subsection I of § 1 of Ord. 95-1396, department of finance (2.24)
95-1397	Regulates and control of smoking in Convention Center and repeals conflicting provisions of Ch. 10.18 (10.18)
Amdt. 1	Adds language to § 1 of Ord. 95-1397, prohibition of smoking in metropolitan buildings (10.18)
95-1398	Amends zoning map (Special)
95-1399	(Defeated)
95-1400	(Defeated)
95-1401	Rezone (Special)
Amdt. 1	Amends caption of Ord. 95-1401 (Special)
95-1402	Rezone (Special)
95-1403	(Withdrawn)
95-1404	Rezone (Special)
Amdt. 1	Amends language of Ord. 95-1404 (Special)
95-1405	Amends zoning map (Special)
95-1406	Rezone (Special)
95-1407	Amends zoning map (Special)
95-1408	Alley closure (Special)
95-1409	Alley closure (Special)
Amdt. 1	Repeals and replaces § 5 of Ord. 95-1409 (Special)
95-1410	Alley closure (Special)
95-1411	Public utility and drainage easements abandonment (Special)
95-1412	Sale of surplus property (Special)
95-1413	Grants permanent easement to BellSouth Telecommunications (Special)
Amdt. 1	Repeals and replaces copy of permanent easement agreement of § 1 of Ord. 95-1413 (Special)
95-1414	Approves memorandum of understanding for cooperative assistance along two miles of Natchez Trace Parkway (Special)
95-1415	Acquisition of property for Basswood bypass remediation (Special)
95-1416	(Withdrawn)
95-1417	(Failed)
95-1418	Approves certain contract in lieu of performance bond (Special)
95-1419	Rezone (Special)
95-1420	Rezone (Special)

Ordinance Number	Disposition
95-1421	Authorizes construction, installation and maintenance of certain sign (Special)
95-1422	Street closure (Special)
95-1423	(Vetoed)
95-1424	Accepts sum of money to aid in construction of certain waterline (Special)
95-1425	(Withdrawn)
95-1426	Acquisition of property for the purpose of acquiring utility easements (Special)
95-1427	Accepts proposal to improve state highway system (Special)
95-1428	Amends § 4.12.010, source selection and contract formation (4.12)
95-1429	Easements abandonment (Special)
95-1430	Rezone (Special)
95-1431	Grants permanent easement to Nashville Electric Service (Special)
95-1432	(Withdrawn)
95-1433	Adds new 10.48.120(c) and reletters present (c) to be (d), public swimming pools (10.48)
95-1434	Amends Ord. 94-1294, acquisition of property (Special)
95-1435	Readopts code (1.01)
95-1436	Approves amendment to certain grant for public library construction (Special)
95-1437	(Withdrawn)
95-1438	Rezone (Special)
95-1439	Amends zoning map (Special)
Amdt. 1	Adds language to § 1 of Ord. 95-1439 (Special)
95-1440	Adopts capital improvements budget and program 1995—96 through 2000—01 (Not codified)
Amdt. 1	Amends Ord. 95-1440 (Not codified)
Amdt. 2	Amends Ord. 95-1440 (Not codified)
Amdt. 3	Amends Ord. 95-1440 (Not codified)
Amdt. 4	Amends Ord. 95-1440 (Not codified)
Amdt. 5	Amends Ord. 95-1440 (Not codified)
Amdt. 6	Amends Ord. 95-1440 (Not codified)
Amdt. 7	Amends Ord. 95-1440 (Not codified)
Amdt. 8	Amends Ord. 95-1440 (Not codified)
Amdt. 9	Amends Ord. 95-1440 (Not codified)
Amdt. 10	Amends Ord. 95-1440 (Not codified)
Amdt. 11	Amends Ord. 95-1440 (Not codified)
Amdt. 12	Amends Ord. 95-1440 (Not codified)
Amdt. 13	Amends Ord. 95-1440 (Not codified)
Amdt. 14	Amends Ord. 95-1440 (Not codified)
Amdt. 15	Amends Ord. 95-1440 (Not codified)
Amdt. 16	Amends Ord. 95-1440 (Not codified)
95-1441	Amends § 17.136.070(A), zoning (Repealed by 96-555)
Amdt. 1	Adds new § 2 and reletters present § 2 to be § 3; amends caption and paragraph 2 of § 1, zoning (Repealed by 96-555)
95-1442	Rezone (Special)
95-1443	Street closure (Special)
95-1444	Budget Ordinance for 1995—96 (Special)
95-1445	Tax levy (Special)
95-1446	Adds § 3.08.040(G); amends language in Ch. 2.40, Art. III and §§ 2.40.150(C) and 2.96.050(D); repeals § 2.40.190(H), (I), (J) and (M) and renumbers the remaining subsections accordingly, employee safety functions (2.40, 2.96, 3.08)
95-1447	(Withdrawn)
95-1448	Authorizes mayor to execute amendment to certain 1963 agreement; repeals and replaces § 3.48.080(B), social security (3.48)
95-1449	Repeals and replaces §§ 2.38.010, 2.38.020 and 2.38.030, medical examiner's office (2.38)
95-1450	Grants permanent easement to Nashville Electric Service (Special)
95-1451	Approves a grant contract for provision of prevention services in the form of the Vine Hill Community Collaborative Project (Special)
95-1452	Adds §§ 3.08.011, 3.08.012, 3.08.040(H), 3.08.171, 3.12.031, Ch. 3.29 (§§ 3.29.010—3.29.090), Ch. 33 (§§ 3.33.010—3.33.040), Ch. 3.37 (§§ 3.37.010—3.33.040) and § 3.40.041; adds language to opening paragraphs of Ch. 28 and Ch. 36; amends §§ 3.08.010, 3.08.030(B), 3.08.040, 3.08.110(A) and (B), 3.08.130, 3.08.170, 3.08.220, 3.12.040, 3.12.050(A), 3.12.060(A), 3.16.020, 3.16.050, 3.24.020, 3.28.060, 3.28.100, 3.32.010, 3.40.010, 3.40.020, 3.40.040; renumbers 3.28.090 to be 3.20.040; repeals and replaces 3.08.050, 3.08.110(E), 3.80.120(H), 3.40.050 (B) and (D), metropolitan employee benefit system; repeals § 3.12.050(B) (3.08, 3.12, 3.16, 3.20, 3.24, 3.28, 3.29, 3.32, 3.33, 3.36, 3.37, 3.40)
Amdt. 1	Repeals and replaces subsection (D) from § 32 of Ord. 95-1452, metropolitan employee benefit system (3.12)
Amdt. 2	Amends language of § 21 of Ord. 95-1452, metropolitan employee benefit system (3.08)
95-1453	Approves certain contract for promotion of tourism and convention business and the expenditure of funds (Special)
95-1454	Amends Ord. 95-1360 by postponing effective date until September 1, 1995 (parking) (Not codified)
95-1455	(Withdrawn)
95-1456	Street closure (Special)

Ordinance Number	Disposition
95-1457	Street closure (Special)
95-1458	Street closure (Special)
95-1459	(Withdrawn)
95-1460	Alleys closure (Special)
95-1461	Street closure (Special)
95-1462	Rezone (Special)
95-1463	(Withdrawn)
95-1464	(Defeated)
95-1465	(Defeated)
95-1466	(Withdrawn)
95-1467	(Defeated)
95-1468	Rezone (Special)
95-1469	Rezone (Special)
95-1470	(Failed)
95-1471	Amends zoning map (Special)
95-1472	Rezone (Special)
95-1473	Rezone (Special)
95-1474	Rezone (Special)
95-1475	Amends zoning map (Special)
95-1476	Rezone (Special)
95-1477	Amends zoning map (Special)
95-1478	Rezone (Special)
95-1479	Amends zoning map (Special)
95-1480	Rezone (Special)
95-1481	Rezone (Special)
95-1482	(Defeated)
95-1483	(Defeated)
95-1484	Rewards for arrest and conviction of littering/ graffiti code violators (11.26)
95-1485	Amends § 5.16.050(A), privilege taxes (5.16)
Amdt. 1	Deletes "Resolution" in § 2 of Ord. 95-1485 and replaces it with "Ordinance," privilege taxes (5.16)
95-1486	(Withdrawn)
95-1487	Adds § 16.08.016; amends § 13.16.030, encroachments and §§ 16.08.010, 16.08.012, 16.08.014, 16.12.130, 16.12.210, 16.16.190, 16.16.230, 16.16.240, 16.20.240, 16.28.170, 16.28.090 and 16.48.010; repeals and replaces §§ 16.12.120 and 16.28.030, buildings and construction (13.16, 16.08, 16.12, 16.16, 16.20, 16.28, 16.48)
95-1488	Repeals Ord. 92-384 and approves sewer installation and accepts certain sum as reimbursement therefor (Special)
95-1489	Authorizes metro county mayor to execute certain Disputes Review Board Three Party Agreement (Special)
95-1490	(Special)
95-1491	Repeals and replaces § 17.28.400, bulk regulations; repeals §§ 17.28.390 and 17.28.410 (Repealed by 96-555)
95-1492	Amends § 7.08.010, beer and alcoholic beverages less than five percent (7.08)
95-1493	Rezone (Special)
95-1494	Rezone (Special)
95-1495	Rezone (Special)
95-1496	Amends zoning map (Special)
95-1497	Rezone (Special)
95-1498	Amends zoning map (Special)
95-1499	Rezone (Special)
95-1500	(Withdrawn)
95-1501	Rezone (Special)
95-1502	Rezone (Special)
95-1503	Rezone (Special)
95-1504	Rezone (Special)
95-1505	Amends zoning map (Special)
95-1506	Rezone (Special)
95-1507	Amends zoning map (Special)
95-1508	Rezone (Special)
95-1509	Amends zoning map (Special)
95-1510	(Withdrawn)
95-1511	(Withdrawn)
95-1512	Rezone (Special)
95-1513	Amends § 15.28.040, water use restrictions; repeals § 15.28.030 (15.28)
95-1514	Sale of property (Special)
95-1515	Approves grant for public libraries (Special)
95-1516	Creates positions for department of the medical examiner (Special)
95-1517	Public, educational and governmental access oversight committee (6.10)
95-1518	West Wilson Utility District agreement (Special)
95-1519	Easement abandonment (Special)
95-1520	(Withdrawn)
95-1521	Amends § 15.44.020 and its table, sewer rates and charges (Repealed by 99-1502)
95-1522	Sale of property (Special)
95-1523	Acceptance of certain sum to aid in sewer line project (Special)
95-1524	Acquisition of property (Special)
95-1525	Acquisition of property (Special)
95-1526	Authorizes contract for litter pickup using inmate labor (Special)
95-1527	Approves grant contract for community corrections program by sheriff's department (Special)
95-1528	Approves grant for drug task force (Special)
95-1529	Approves grant for sex crime unit (Special)
95-1530	Approves grant for drug control and systems improvement program (Special)
95-1531	Lease agreement (Special)
95-1532	Approves grant for drug control and counter-stalking project (Special)

Ordinance Number	Disposition
95-1533	Approves grant for solid waste educational programs (Special)
95-1534	Approves grant for drug control and community policing data project (Special)
95-1535	Approves grant for Title IV-D child support services (Special)
95-1536	Approves grant for drug control and juvenile court/intensive probation project (Special)
95-1537	Approves grants and matching funds for metropolitan police department and office of district attorney (Special)
95-1538	Authorizes metropolitan mayor to make application for pollution abatement projects grant (Special)
95-1539	Authorizes metropolitan mayor to make application for pollution abatement projects grant (Special)
95-1540	Acquisition of property (Special)
95-1541	Amends §§ 15.68.020, 15.68.030 and 15.68.040, private fire hydrants (15.68)
95-1542	Adds new subsection (I) to § 16.08.014, building codes; repeals and replaces § 10.64.010(K)[C], fire prevention code and 16.08.012(C), building codes (16.08)
95-1543	Alley closure (Special)
95-1544	Alley closure (Special)
95-1545	(Withdrawn)
95-1546	Approves certain contract for 1995—96 fiscal year (Special)
95-1547	Approves contract for Metropolitan General Sessions Court and PEACE, Inc. (Special)
95-1548	Approves grant for maternal and infant care program (Special)
95-1549	Approves certain roadway improvement construction proposal (Special)
95-1550	(Vetoed)
95-1	Approves grant for victim intervention program (Special)
95-2	Approves grant for library services for the disadvantaged (Special)
95-3	Approves grant for public library intergenerational services (Special)
95-4	(Withdrawn)
95-5	Approves contract between metro general sessions court and Kelly Miller Smith Center (Special)
95-6	Authorizes agreement for improvements (Special)
95-7	Approves memorandum of understanding for fire department (Special)
95-8	Approves fire department emergency assistance policies and procedures (Special)
95-9	Approves increase in emergency ambulance and rescue service rates (Special)
Amdt. 1	Amends § 1 of Ord. 95-9 (Special)
95-10	Approves grant contract with state for juvenile court case support services (Special)
95-11	Approves grant contract with state for provisions of prevention services (Special)
95-12	Approves second amendment to the January 17, 1985 agreement to secure wastewater trunk and treatment services (Special)
95-13	Authorizes acceptance of street improvements (Special)
95-14	Authorizes acceptance of street improvements (Special)
95-15	Approves grant for extending WPLN's signal (Special)
95-16	Approves contract for an exposure control consultant (Special)
95-17	(Withdrawn)
95-18	Authorizes acquisition of certain property (Special)
95-19	Adopts property identification maps (13.44)
95-20	Accepts percentage of cost of construction of water line (Special)
95-21	(Withdrawn)
95-22	Abandons certain sewer easement (Special)
95-23	Abandons certain sewer easement (Special)
95-24	Abandons certain sewer easement (Special)
95-25	Abandons certain sewer easement (Special)
95-26	(Withdrawn)
95-27	Abandons certain sewer easement (Special)
95-28	Abandons certain sewer easement (Special)
95-29	Authorizes payment of percentage of cost of construction of water system improvements (Special)
95-30	Authorizes memorandum of understanding with Tennessee Wildlife Resources Agency (Special)
Amdt. 1	Amends § 1 of Ord. 95-30 (Special)
95-31	Authorizes contract with state to issue certificates of titles (Special)
95-32	Repeals and replaces §§ 2.04.060, 2.04.150, 2.04.160, 2.04.170, 2.04.180, 2.04.190 and 2.04.200, metropolitan council; repeals §§ 2.04.140, 2.04.210, 2.04.220 and 2.04.230 (2.04)
Amdt. 1	Amends § 3 of Ord. 95-32, metropolitan council (2.04)
Amdt. 2	Changes language in § 3 of Ord. 95-32, metropolitan council (2.04)
Amdt. 3	Adds language to § 3 of Ord. 95-32, metropolitan council (2.04)
95-33	Adds a new section to Ch. 4.12, source selection and contract formation (4.12)

Ordinance Number	Disposition
95-34	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Adds § 4 to and repeals and replaces § 3 of Ord. 95-34 (Special)
95-35	Amends official street and alley acceptance and maintenance map (Special)
95-36	Amends zoning map (Special)
95-37	Rezone (Special)
95-38	Amends zoning map (Special)
95-39	Street name change (Special)
95-40	Rezone (Special)
95-41	Makes provisions of Ch. 17.96 applicable to certain property (Special)
Amdt. 1	Adds language to § 1 of Ord. 95-41 (Special)
95-42	Rezone (Special)
95-43	(Withdrawn)
95-44	Amends zoning map (Special)
95-45	Rezone (Special)
95-46	Rezone (Special)
95-47	Amends zoning map (Special)
95-48	Rezone (Special)
95-49	Rezone (Special)
95-50	Amends zoning map (Special)
Amdt. 1	Substitutes new plan for plan referenced in Ord. 95-50 (Special)
95-51	Amends zoning map (Special)
95-52	Amends zoning map (Special)
95-53	Rezone (Special)
95-54	(Withdrawn)
95-55	Abandons certain public utility and drainage easements (Special)
Amdt. 1	Adds § 4 to and repeals and replaces § 3 of Ord. 95-55 (Special)
95-56	Alley vacation (Special)
95-57	Authorizes payment of percentage of cost of ditch stabilization (Special)
95-58	Accepts grant for implementation of Urban and Community Forestry Grant Assistance Program (Special)
95-59	Approves memorandum of understanding with fire department (Special)
95-60	(Withdrawn)
95-61	Rezone (Special)
95-62	Rezone (Special)
95-63	Rezone (Special)
95-64	(Withdrawn)
95-65	Authorizes acceptance of funds towards construction of sewer improvements (Special)
95-66	Authorizes utility contract with state (Special)
95-67	Authorizes utility contract with state (Special)
95-68	Rezone (Special)
95-69	Rezone (Special)
95-70	(Defeated)
95-71	Rezone (Special)
Amdt. 1	Amends § 1 of Ord. 95-71 (Special)
5-74	Rezone (Special)
95-75	Amends zoning map (Special)
95-76	Amends zoning map (Special)
95-77	Authorizes mayor to submit annual plan update to the consolidated plan for housing and community development (Not codified)
95-78	Alley vacation (Special)
95-79	Approves sale of certain property (Special)
95-80	Approves memorandum of understanding between metropolitan development and housing agency and the juvenile court (Special)
95-81	Approves transfer of cable communications franchise (Special)
95-82	Authorizes acquisition of property for utility easements (Special)
95-83	Approves contract to renovate the Parthenon (Special)
95-84	Adds subsections (A)(7) and (F) to § 10.56.050 and subsection (B)(4) to § 10.56.080; amends §§ 10.56.010, 10.56.040(B), 10.56.050(E), 10.56.080(E)(1) and 10.56.240(C), air pollution control (10.56)
95-85	Authorizes acceptance of in lieu of taxes (Special)
95-86	Tattooing (Repealed by 97-757)
Amdt. 1	Amends whereas clause and language in subsection 2(a), tattooing (Repealed by 97-757)
95-87	Approves grant to develop plan for the establishment and operation of a drug court (Special)
95-88	(Withdrawn)
95-89	Authorizes acceptance of solid waste management grant (Special)
95-90	Authorizes acquisition of property for utility easements (Special)
95-91	Commissions disparity study (Special)
95-92	Assistance to low-income elderly residents program (Not codified)
95-93	Amends § 2.28.030(C), fire department (2.28)
95-94	Amends § 15.44.020, sewer rates and charges (Repealed by 99-1502)
Amdt. 1	Amends § 1 of Ord. 95-94, sewer rates and charges (Repealed by 99-1502)
95-95	Rezone (Special)
95-96	(Withdrawn)

Ordinance Number	Disposition
95-97	Rezone (Special)
95-98	Rezone (Special)
95-99	Rezone (Special)
95-100	Authorizes conveyance of certain property (Special)
95-101	Authorizes lease of certain property (Special)
95-102	(Withdrawn)
95-103	Readopts code (1.01)
95-104	Amends certain lease agreement (Special)
95-105	Approves joint funding agreement for operation and maintenance of flow monitoring stations (Special)
95-106	Approves agreement for funds for jail facility improvements (Special)
Amdt. 1	Adds language to § 1 of Ord. 95-106 (Special)
95-107	Amends lease agreement (Special)
95-108	Adds subsection (K) to and amends subsections (B), (C), (F) and (I) of § 17.18.080; amends §§ 17.18.090(B) and 17.18.110, protection of trees (Repealed by 96-555)
95-109	Repeals Ch. 6.96 (Repealer)
95-110	Approves fire department emergency assistance policies and procedures (Special)
95-111	Rezone (Special)
95-112	Amends zoning map (Special)
95-113	Amends § 17.60.030(B)(2), use and sign regulations (Repealed by 96-555)
95-114	Grants license to maintain encroachment (Special)
Amdt. 1	Repeals and replaces § 1 of Ord. 95-114 (Special)
95-115	Adopts official street and alley acceptance and maintenance map (Special)
95-116	Authorizes wastewater trunk and treatment agreement (Special)
95-117	Accepts water and sanitary sewerage facilities (Special)
95-118	Authorizes abandonment of drainage easement (Special)
95-119	Approves contract in lieu of performance bond (Special)
95-120	Authorizes conveyance of certain property (Special)
95-121	Accepts conservation easement over certain property (Special)
Amdt. 1	Amends § 10 and repeals and replaces § 2 of Ord. 95-121 (Special)
Amdt. 2	Repeals and replaces § 2 of Ord. 95-121 (Special)
95-122	Authorizes acceptance of contract with state concerning certain intersection (Special)
95-123	Approves certain lease agreement (Special)
95-124	Rezone (Special)
95-125	Amends zoning map (Special)
95-126	Rezone (Special)
95-127	Amends zoning map (Special)
95-128	Rezone (Special)
95-129	(Defeated)
95-130	Rezone (Special)
95-131	(Defeated)
95-132	Amends zoning map (Special)
95-133	Rezone (Special)
95-134	Amends zoning map (Special)
95-135	Amends zoning map (Special)
95-136	Amends zoning map (Special)
95-137	Rezone (Special)
95-138	(Withdrawn)
95-139	Amends zoning map (Special)
95-140	Amends zoning map (Special)
95-141	Rezone (Special)
95-142	Amends zoning map (Special)
95-143	Rezone (Special)
95-144	Amends zoning map (Special)
95-145	Rezone (Special)
95-146	Rezone (Special)
95-147	Abandons portions of certain utility and drainage easements (Special)
95-148	Street name change (Special)
95-149	(Withdrawn)
95-150	Adds §§ 11.28.200—11.28.280, curfew for juveniles; repeals §§ 11.28.090— 11.28.110 (Expired)
Amdt. 1	Amends § 2 of Ord. 95-150, curfew for juveniles (Expired)
Amdt. 2	Adds subsection (5) to § 11.28.240 as added by Ord. 96-150, curfew for juveniles (Expired)
95-151	(Withdrawn)
95-152	(Withdrawn)
95-153	Authorizes sale of certain property (Special)
96-154	Repeals and replaces § 2.40.100, department of law (2.40)
Amdt. 1	Repeals and replaces § 1 of Ord. 96-154, department of law (2.40)
96-155	Amends § 5.04.020, revenue and finance (5.04)
Amdt. 1	Amends § 1 of Ord. 96-155, revenue and finance (5.04)
96-156	Rezone (Special)
96-157	Street vacation (Special)
96-158	Street vacations (Special)
96-159	Approves sale of certain property (Special)
Amdt. 1	Amends § 3 of Ord. 96-159 (Special)
96-160	Approves certain lease agreement (Special)

Ordinance Number	Disposition
96-161	Approves amendment to grant agreement for solid waste educational programs (Special)
96-162	Amends § 2.28.030(C), fire department (2.28)
96-163	Approves East Bank redevelopment plan (Special)
Amdt. 1	Amends § B(3) and (C) of plan referenced in Ord. 96-163 (Special)
Amdt. 2	Deletes certain parcels from plan referenced in Ord. 96-163 (Special)
96-164	Acquisition of property for Nashville stadium (Special)
Amdt. 1	Deletes certain parcels from map referenced in Ord. 96-164 (Special)
Amdt. 2	Repeals § 3 of Ord. 96-164 and renumbers § 4 to be § 3 (Special)
96-165	Names certain fire station in honor of certain citizen (Special)
96-166	Designates county clerk as tax collection official for certain taxes and fees; amends §§ 5.12.010 and 5.12.050, hotel occupancy privilege tax; amends § 7.12.040, alcoholic beverage wholesalers (5.12, 7.12)
96-167	Amends Ord. 94-1227, official street and alley acceptance and maintenance map (Not codified)
96-168	Alley vacation (Special)
Amdt. 1	Adds language to § 1 of Ord. 96-168 (Not codified)
96-169	(Withdrawn)
96-170	Amends zoning map (Special)
Amdt. 1	Substitutes new plan for plan referenced in Ord. 96-170 (Special)
96-171	Rezone (Special)
96-172	Rezone (Special)
96-173	(Withdrawn)
96-174	Rezone (Special)
96-175	Amends zoning map (Special)
96-176	Rezone (Special)
96-177	Rezone (Special)
96-178	Accepts proposal between the metropolitan government and the state for certain improvements (Special)
96-179	Amends zoning map (Special)
96-180	Rezone (Special)
96-181	Amends zoning map (Special)
96-182	Amends zoning map (Special)
96-183	Amends zoning map (Special)
96-184	Acquisition of certain property for utility easements (Special)
96-185	Approves certain federal grant (Special)
96-186	Approves certain federal grant (Special)
96-187	Rezone (Special)
96-188	Amends zoning map (Special)
96-189	Rezone (Special)
96-190	Amends zoning map (Special)
Amdt. 1	Substitutes new plan for plan referenced in Ord. 96-190 (Special)
96-191	Amends zoning map (Special)
96-192	Rezone (Special)
96-193	(Defeated)
96-194	Amends zoning map (Special)
96-195	Amends zoning map (Special)
96-196	Property reversion (Special)
96-197	Sale of certain real property (Special)
96-198	Accepts contract between the metropolitan government and the state for certain improvements (Special)
96-199	Accepts contract between the metropolitan government and the state for certain improvements (Special)
96-200	Accepts contract between the metropolitan government and the state for certain improvements (Special)
96-201	Accepts contract between the metropolitan government and the state for certain improvements (Special)
96-202	Alley vacation (Special)
96-203	Street vacation (Special)
96-204	Street renaming (Special)
96-205	Easement vacation (Special)
96-206	Rezone (Special)
96-207	Rezone (Special)
96-208	Amends zoning map (Special)
96-209	Amends zoning map (Special)
96-210	(Withdrawn)
96-211	(Withdrawn)
96-212	Street vacation (Special)
96-213	Rezone (Special)
96-214	(Withdrawn)
96-215	(Defeated)
96-216	Adds § 17.132.115; amends §§ 17.60.020(C)(27), 17.72.100(B) and 17.72.220, zoning (Repealed by 96-555)
96-217	Amends § 17.28.370(A), zoning (Repealed by 96-555)
96-218	Authorizes certain encroachments into public sidewalk (Special)
96-219	Development agreement for football stadium (Special)
96-220	Approves certain memorandum of understanding (Special)
96-221	Approves certain intergovernmental project agreement (Special)
96-222	Bond issuance (Special)
96-223	Easement acceptance (Special)

Ordinance Number	Disposition
96-224	Approves letter agreement concerning the appropriation of certain federal funds (Special)
96-225	Approves certain mutual aid agreement (Special)
Amdt. 1	Amends first whereas clause of Ord. 96-225 (Special)
96-226	Authorizes participation contract with Vanderbilt University for construction of certain improvements (Special)
96-227	(Withdrawn)
96-228	Approves one-time residential water and sewer rate reduction (Special)
Amdt. 1	Adds language to § 1 of Ord. 96-228 (Special)
96-229	Official seal of metropolitan government (Not codified)
96-230	Approves sublease of certain property (Special)
96-231	Sale of certain property (Special)
96-232	Acquisition of certain property for utility easements (Special)
96-233	Acquisition of certain property for utility easements (Special)
96-234	Authorizes application for certain state loans and grants (Special)
Amdt. 1	Amends § 1 of Ord. 96-234 (Special)
96-235	Authorizes certain utility contract with state (Special)
96-236	Rezone (Special)
96-237	Rezone (Special)
96-238	Rezone (Special)
96-239	Rezone (Special)
96-240	(Withdrawn)
96-241	Rezone (Special)
96-242	Alley vacation (Special)
96-243	Rezone (Special)
96-244	Rezone (Special)
96-245	Adds subsection B to § 12.84.030; amends § 12.20.030(B), vehicles and traffic (12.20, 12.84)
96-246	Sale of certain property (Special)
96-247	Program for voluntary participation in the metropolitan government's drop-off recycling program (Not codified)
96-248	Approves certain state grant (Special)
96-249	Approves certain state grant (Special)
96-250	Approves certain federal grant (Special)
96-251	Approves lease agreement (Special)
96-252	Approves lease agreement (Special)
96-253	(Withdrawn)
96-254	Acceptance of easement (Special)
96-255	(Withdrawn)
96-256	Street vacation (Special)
96-257	Amends zoning map (Special)
96-258	Amends zoning map (Special)
96-259	Amends zoning map (Special)
96-260	Rezone (Special)
96-261	Rezone (Special)
96-262	Amends zoning map (Special)
Amdt. 1	Substitutes new sketch for sketch referenced in Ord. 96-262 (Special)
96-263	Rezone (Special)
96-264	Street vacation (Special)
96-265	Grants telecommunications franchise (Special)
Amdt. 1	Adds § 2 to and renumbers subsequent sections of Ord. 96-265 (Special)
96-266	(Withdrawn)
96-267	(Withdrawn)
96-268	(Withdrawn)
96-269	Approves certain memorandum of understanding (Special)
96-270	Approves certain personal service contract (Special)
96-271	Approves lease agreement (Special)
96-272	Approves an amendment to certain state grant (Special)
96-273	Acquisition of certain property for utility easements (Special)
96-274	Authorizes agreement with the state for certain improvements (Special)
96-275	Authorizes payment for certain improvements (Special)
96-276	Approves implementation of Youth at Work Partnership Program (Special)
96-277	Approves lease agreement (Special)
96-278	(Withdrawn)
96-279	(Withdrawn)
96-280	Amends zoning map (Special)
96-281	Amends zoning map (Special)
96-282	Rezone (Special)
96-283	Amends § 17.64.180(A), zoning (Repealed by 96-555)
96-284	Amends zoning map (Special)
96-285	Rezone (Special)
96-286	Rezone (Special)
Amdt. 1	Amends § 1 of Ord. 96-286 (Special)
96-287	Sale of certain property (Special)
96-288	Abandons certain remnant parcel (Special)
96-289	Rezone (Special)
96-290	Agreement to transfer assets of radio station to Nashville Public Radio (Special)
Amdt. 1	Amends § 2 of Ord. 96-290 (Special)
96-291	Disbursement of certain funds (Special)
Amdt. 1	Amends § 3 of Ord. 96-291 (Special)
96-292	Authorizes utility contract with state (Special)

Ordinance Number	Disposition
96-293	(Withdrawn)
96-294	Rezone (Special)
96-295	Adds § 11.12.080, offenses against public peace (11.12)
Amdt. 1	Amends § 1 of Ord. 96-295; offenses against public peace (11.12)
96-296	Minimal requirement of educational instruction for detainees in the metro juvenile detention facility (2.56)
Amdt. 1	Adds § 4 to and amends § 3 of Ord. 96-296 (Not codified)
96-297	Acquisition and redevelopment of certain property for residential purposes (Special)
96-298	Approves lease agreement (Special)
Amdt. 1	Amends § 2 of Ord. 96-298 (Special)
Amdt. 2	Amends § 1 of Ord. 96-298 (Special)
96-299	Adds § 2.12.030, metropolitan trustee (2.12)
96-300	(Withdrawn)
96-301	Acceptance of property (Special)
96-302	Amends § 11.12.060, offenses against public peace (11.12)
Amdt. 1	Amends § 2 of Ord. 96-302, offenses against public peace (11.12)
96-303	Rescinds contract for purchase of certain property (Special)
96-304	Receipt of contribution for certain sewer improvements (Special)
96-305	Acceptance of contribution for certain sewer improvements (Special)
96-306	Authorizes utility contract with state (Special)
96-307	Acquisition of certain property for utility easements (Special)
96-308	Repeals and replaces § 2.24.210, department of finance (2.24)
96-309	Easement vacation (Special)
Amdt. 1	Amends §§ 1 and 2 of Ord. 96-309 (Special)
96-310	Street vacation (Special)
96-311	Amends zoning map (Special)
96-312	Authorizes construction of chilled water lines under certain right-of-way (Special)
96-313	Street renaming (Special)
96-314	(Withdrawn)
96-315	Rezone (Special)
96-316	(Withdrawn)
96-317	Amends § 15.44.020, sewer rates and charges (Repealed by 99-1502)
96-318	Rezone (Special)
96-319	Amends §§ 6.64.110(A)(11)(b) and (c) and 6.64.190(B) and (C), solicitations (6.64)
96-320	Approves lease agreement (Special)
Amdt. 1	Amends § 2 of Ord. 96-320 (Special)
96-321	Amends § 16.20.150; repeals and replaces §§ 16.20.140, electrical code (16.20)
Amdt. 1	Adds § 15 to and amends § 14 of Ord. 96-321, electrical code (16.20)
96-322	Authorizes acceptance of certain state grant (Special)
96-323	Authorizes contract with state to issue certificates of title (Special)
96-324	(Withdrawn)
96-325	(Withdrawn)
96-326	Authorizes contract with state for additional bridge (Special)
96-327	Accepts contribution for certain water and sewer improvements (Special)
96-328	Authorizes utility contract with state (Special)
96-329	(Withdrawn)
96-330	Acquisition of certain property for expansion of wastewater treatment plant (Special)
Amdt. 1	Amends Ord. 96-330 (Special)
96-331	Adopts capital improvements budget and program 1996—97 through 2001—02 (Not codified)
Amdt. 1	Amends Ord. 96-331 (Not codified)
Amdt. 2	Amends Ord. 96-331 (Not codified)
Amdt. 3	Amends Ord. 96-331 (Not codified)
Amdt. 4	Amends Ord. 96-331 (Not codified)
Amdt. 5	Amends Ord. 96-331 (Not codified)
Amdt. 6	Amends Ord. 96-331 (Not codified)
Amdt. 7	Amends Ord. 96-331 (Not codified)
Amdt. 8	Amends Ord. 96-331 (Not codified)
Amdt. 9	Amends Ord. 96-331 (Not codified)
Amdt. 10	Amends Ord. 96-331 (Not codified)
Amdt. 11	Amends Ord. 96-331 (Not codified)
96-332	1996—97 budget (Special)
96-333	Tax levy (Special)
96-334	Amends zoning map (Special)
Amdt. 1	Amends Ord. 96-334 (Special)
Amdt. 2	Amends Ord. 96-334 (Special)
96-335	Amends zoning map (Special)
96-336	Amends zoning map (Special)
96-337	Sale of certain property (Special)
96-338	Amends § 6.32.020(A), hucksters and peddlers (6.32)
96-339	Easement acceptance (Special)
96-340	Approves contract for program to rehabilitate domestic violence-related offenders (Special)
96-341	Approves mutual aid agreement for law enforcement (Special)
96-342	Approves contract for program to rehabilitate domestic violence-related offenders (Special)

Ordinance Number	Disposition
96-343	Approves state disaster assistance grant (Special)
96-344	Acquisition of certain property for bridge replacement (Special)
96-345	Amends trunk and treatment agreement with Old Hickory Utility District (Special)
96-346	Readopts code (1.01)
96-347	Street renaming (Special)
96-348	Street renaming (Special)
96-349	(Withdrawn)
96-350	Repeals subsection (B) of § 17.132.090, zoning (Repealed by 96-555)
96-351	Rezone (Special)
96-352	Amends zoning map (Special)
96-353	Amends zoning map (Special)
96-354	Rezone (Special)
96-355	Amends zoning map (Special)
96-356	Rezone (Special)
96-357	(Withdrawn)
96-358	Rezone (Special)
96-359	Rezone (Special)
96-360	Amends zoning map (Special)
96-361	Rezone (Special)
96-362	(Defeated)
96-363	(Withdrawn)
96-364	(Withdrawn)
96-365	(Defeated)
96-366	(Defeated)
96-367	(Withdrawn)
96-368	Rezone (Special)
96-369	Rezone (Special)
96-370	Rezone (Special)
96-371	Rezone (Special)
96-372	Amends zoning map (Special)
Amdt. 1	Adds § 3 to and renumbers § 3 to be § 4 of Ord. 96-372 (Special)
96-373	Amends §§ 17.28.050 and 17.124.400, zoning (Repealed by 96-555)
96-374	Repeals and replaces § 17.124.080(A), zoning (Repealed by 96-555)
96-375	Acquisition of property for right-of-way and easements (Special)
96-376	Adds language to § 2.32.030(B), department of general services (2.32)
96-377	Approves certain lease agreement (Special)
96-378	Supplement bond issuance (Special)
96-379	Abandons portion of certain street (Special)
96-380	Approves certain state grant (Special)
96-381	Acquisition of property for utility easements (Special)
96-382	Acceptance of certain property (Special)
96-383	Release of reversionary interest in certain property (Special)
Amdt. 1	Amends § 2 of Ord. 96-383 (Special)
96-384	Acceptance of contribution for sewer system improvements (Special)
96-385	Authorizes utility contract with state (Special)
96-386	Approves contract between metropolitan government and the Nashville Area Chamber of Commerce (Special)
96-387	Approves agreement to construct a culvert (Special)
96-388	Street closure (Special)
96-389	Approves certain state grant (Special)
96-390	(Withdrawn)
96-391	Approves certain letter agreement concerning appropriation of state funds for community centers (Special)
96-392	Accepts state proposal for construction of certain road improvements (Special)
96-393	Grant of permanent easement (Special)
96-394	Accepts conveyance of certain property (Special)
Amdt. 1	Adds § 2 to Ord. 96-394 (Special)
96-395	Sale of certain property (Special)
96-396	Sale of certain property (Special)
96-397	Street and alley closures (Special)
96-398	(Withdrawn)
96-399	(Withdrawn)
96-400	Rezone (Special)
96-401	Amends zoning map (Special)
96-402	(Withdrawn)
96-403	Amends zoning map (Special)
Amdt. 1	Deletes certain parcels from plan referenced in Ord. 96-403 (Special)
96-404	(Withdrawn)
96-405	Rezone (Special)
96-406	Amends zoning map (Special)
96-407	Rezone (Special)
96-408	(Defeated)
96-409	Rezone (Special)
96-410	Rezone (Special)
96-411	Amends zoning map (Special)
96-412	(Withdrawn)
96-413	Alley closure (Special)
96-414	(Withdrawn)
96-415	Authorizes contract with state for reimbursement of funds expended for litter pickup using inmate labor (Special)
96-416	Amends grant agreement with state for upgrading convenience centers (Special)
96-417	Accepts grant from state for revision of regional solid waste management plans (Special)
96-418	Approves lease of certain property (Special)

Ordinance Number	Disposition
96-419	Approves transfer of certain property (Special)
96-420	Approves transfer of certain property (Special)
96-421	Accepts grant from state for domestic violence prevention programs (Special)
96-422	Accepts grant from state for drug enforcement program (Special)
96-423	Accepts grant from state for domestic violence prevention programs (Special)
96-424	Accepts grant from state for domestic violence prevention programs (Special)
96-425	Approves certain contract in lieu of performance bond (Special)
96-426	Authorizes agreement with certain property owner for road improvements (Special)
Amdt. 1	Adds chart to Exh. A of Ord. 96-426 (Special)
96-427	(Withdrawn)
96-428	Approves certain intergovernmental agreement with the sports authority of the metropolitan government (Special)
Amdt. 1	Adds language to § 1 of Ord. 96-428 (Special)
Amdt. 2	Adds language to § 1 of Ord. 96-428 (Special)
96-429	(Failed)
96-430	Rezone (Special)
Amdt. 1	Changes language in caption of Ord. 96-430 (Special)
96-431	Rezone (Special)
96-432	Amends § 17.28.190(B)(1), zoning (Repealed by 96-555)
96-433	Rezone (Special)
96-434	Amends zoning map (Special)
96-435	Rezone (Special)
96-436	Amends zoning map (Special)
Amdt. 1	Substitutes new plan for plan referenced in Ord. 96-436 (Special)
96-437	Rezone (Special)
Amdt. 1	Substitutes new sketch for sketch referenced in Ord. 96-437 (Special)
96-438	Amends zoning map (Special)
Amdt. 1	Substitutes new plans for plans referenced in Ord. 96-438 (Special)
96-439	Rezone (Special)
96-440	Street closure (Special)
Amdt. 1	Substitutes new sketch for sketch referenced in Ord. 96-440 (Special)
96-441	Abandons portions of certain easements (Special)
96-442	Approves contract with certain utility district for provision of wastewater treatment services (Special)
96-443	Street closure (Special)
96-444	Street closure (Special)
96-445	Authorizes private contribution towards construction of certain water facility improvements (Special)
96-446	Acquisition of property for utility easements (Special)
96-447	Approves grant contract with state for teen pregnancy program (Special)
96-448	Abandons certain sewer pumping station, easement and facilities (Special)
96-449	Approves lease of certain property (Special)
96-450	Amends zoning map (Special)
96-451	Amends zoning map (Special)
96-452	Amends zoning map (Special)
96-453	(Withdrawn)
96-454	Approves lease of certain property (Special)
Amdt. 1	Amends Ord. 96-454 (Special)
96-455	Acceptance of certain property (Special)
96-456	Approves drug control and systems improvement grant contract (Special)
96-457	Approves drug control and systems improvement grant contract (Special)
96-458	Approves joint mutual aid agreement with city of Dickson (Special)
96-459	Approves certain sublease agreement (Special)
96-460	Approves sale of certain property (Special)
96-461	Repeals and replaces § 3 of Ord. 96-247, drop-off recycling program (Not codified)
Amdt. 1	Amends § 1 of Ord. 96-461 (Not codified)
96-462	Property tax relief for low-income elderly residents for 1996-1997 (Special)
96-463	Authorizes construction of certain groundwater monitoring well (Special)
Amdt. 1	Repeals and replaces § 10 of Ord. 96-463 (Special)
96-464	Alley closure (Special)
96-465	(Withdrawn)
96-466	Approves grant to perform architectural survey of all buildings in county constructed before 1940 (Special)
96-467	Agreement with state for certain street intersection improvement (Special)
96-468	Grants permanent easement (Special)
96-469	Approves grant contract with state for provision of child support services (Special)
96-470	Approves certain lease agreement (Special)
96-471	Adds § 2.08.050, signing and submission of grant applications (2.08)
96-472	Approves certain lease agreement (Special)
96-473	Approves certain lease agreement (Special)

Ordinance Number	Disposition
96-474	Street name change (Special)
96-475	Alley closure (Special)
96-476	Street closure (Special)
96-477	Rezone (Special)
96-478	Rezone (Special)
96-479	Rezone (Special)
96-480	(Defeated)
96-481	(Withdrawn)
96-482	Rezone (Special)
96-483	Rezone (Special)
96-484	(Withdrawn)
96-485	Rezone (Special)
96-486	(Withdrawn)
96-487	Rezone (Special)
96-488	Rezone (Special)
96-489	Rezone (Special)
96-490	Rezone (Special)
96-491	(Withdrawn)
96-492	Street name change (Special)
96-493	Alley closure (Special)
96-494	Alley closure (Special)
96-495	Street closure (Special)
96-496	Approves contract with emergency communications district (Special)
96-497	Amends certain grant agreement (Special)
96-498	Approves modification of agreement for funds for jail facility improvements (Special)
96-499	Approves grant for drug enforcement programs (Special)
96-500	Approves criminal justice system improvement grant for women's center (Special)
96-501	Adopts property identification maps (Special)
96-502	(Failed)
96-503	Amends zoning map (Special)
Amdt. 1	Substitutes new sketch for sketch referenced in Ord. 96-503 (Special)
96-504	Rezone (Special)
96-505	Amends zoning map (Special)
96-506	Rezone (Special)
96-507	Rezone (Special)
96-508	Rezone (Special)
Amdt. 1	Amends Ord. 96-508 (Special)
96-509	Rezone (Special)
96-510	Rezone (Special)
96-511	Rezone (Special)
96-512	(Withdrawn)
96-513	(Withdrawn)
96-514	Transfer of lease (Special)
96-515	Approves certain lease agreement (Special)
Amdt. 1	Renumbers § 3 to be 4 and adds § 3 to Ord. 96-515; deletes and replaces first page of lease agreement (Special)
96-516	Approves certain lease agreement (Special)
96-517	Approves grant for victim intervention program (Special)
96-518	Acceptance of certain property (Special)
Amdt. 1	Amends § 1(1) and (4) of Ord. 96-518 (Special)
96-519	Acquisition of certain property for utility easements (Special)
96-520	Acquisition of certain property for utility easements (Special)
96-521	Authorizes certain utility contract with state (Special)
96-522	Authorizes certain utility contract with state (Special)
96-523	Authorizes certain utility contract with state (Special)
96-524	Acceptance of contribution-in-aid for installation of certain fire hydrant (Special)
96-525	Repeals § 2.64.050(F), boards and commissions (2.64)
96-526	Amends § 11.26.055, graffiti (11.26)
96-527	Adds language to § 6.64.020; repeals and replaces §§ 6.64.030 and 6.64.050, solicitations (6.64)
96-528	Readopts code (1.01)
96-529	Adds Ch. 12.41, valet parking zones (12.41)
96-530	Approves contract with state concerning traffic signals (Special)
96-531	Sale of certain property (Special)
96-532	Repeals Ord. 90-1349 (Repealer)
96-533	Amends § 2 of Ord. 96-462, property tax relief for low-income elderly residents for 1996-1997 (Special)
96-534	Approves certain sublease agreement (Special)
Amdt. 1	Adds language to first paragraph of sublease agreement (Special)
96-535	Approves state grant for drug enforcement programs (Special)
96-536	Approves federal grant for urban planning (Special)
96-537	Road closure (Special)
96-538	Rezone (Special)
96-539	Amends zoning map (Special)
96-540	Adds § 3.08.230(C) and (D); amends §§ 3.08.010, 3.08.011, 3.08.130(A)(1), (2) and (3), 3.08.230(A), 3.12.031(A); repeals § 3.08.130(A)(4), (5) and (6) and deletes Schedule 3.20.030 (3.08, 3.12, 3.20)
Amdt. 1	Adds language to Section 4(B) of Ord. 96-540 (3.08)
96-541	Approves three-year community development block grant plan (Special)
96-542	Rezone (Special)

Ordinance Number	Disposition
96-543	Amends zoning map (Special)
Amdt. 1	Substitutes new plan for plan referenced in Ord. 96-543 (Special)
96-544	(Withdrawn)
96-545	(Withdrawn)
96-546	(Withdrawn)
96-547	(Withdrawn)
96-548	Rezone (Special)
96-549	Amends zoning map (Special)
96-550	Rezone (Special)
96-551	(Withdrawn)
96-552	Street closure (Special)
96-553	Street name change (Special)
96-554	(Withdrawn)
96-555	Repeals and replaces T.17, zoning (17.04, 17.08, 17.12, 17.16, 17.20, 17.24, 17.28, 17.32, 17.36, 17.40)
Amdt. 1	Adds § 4.4(A)(3) to Ord. 96-555; amends §§ 2.1(A), 2.2(A), 2.3, 3.3(A), 3.5(A)(1) and (3), 4.3(I)(2)(c), (d) and (g)(2), 7.1(B)(5)(d) and (C)(1), 9.2(E)(2)(a), 10.3(D), 10.4(B)(1)(e), (C)(4) and (D)(5), 10.7(D), 10.8(D), 10.9(B)(2), 10.14(D), 10.15(C) (D)(3)(b) and (c), and Tables 3-A, 3-B, 3-D and 6.5A of Ord. 96-555, zoning (17.08, 17.12, 17.16, 17.24, 17.28, 17.36, 17.40)
96-556	Approves local law enforcement block grant (Special)
96-557	Approves federal grant for church arson prevention (Special)
96-558	Authorizes application for state loans for pollution abatement projects (Special)
96-559	Approves mutual aid agreement with the city of White House (Special)
96-560	Approves state grant for Polaroid Law Enforcement Camera Project (Special)
96-561	Approves state grant for Vine Hill Community Collaborative Project (Special)
96-562	Adds new subsections (F) and (M) to § 16.08.012, repeals subsection (Q), and reletters remaining subsections; adds §§ 16.12.120(C), 16.12.140 and 16.20.154; adds [repeals and replaces] § 16.16.230(A), (B), (C) and (E); designates existing § 16.20.140 as subsection (A) and adds new subsection (B) thereto; amends §§ 16.08.012(A)(1) and (F), introductory paragraph to § 16.08.014 and title of § 16.12.130; repeals and replaces §§ 16.08.010(B) and (D), 16.08.014(A) through (P), 16.08.016(A) and (B), 16.16.190(A) and 16.16.230(D), buildings and construction (16.08, 16.12, 16.16, 16.20)
Amdt. 1	Repeals and replaces § 85 of Ord. 96-562 (Not codified)
96-563	Approves state grant for mentally ill chemical abuser advocacy program (Special)
96-564	Approves certain letter of understanding (Special)
96-565	Approves contract for tourism promotion (Special)
Amdt. 1	Adds language to § 1, adds new § 2 to, renumbers existing § 2 to be § 3, and repeals and replaces first whereas clause of Ord. 96-565 (Special)
96-566	Authorizes agreement with Nashville Electric Service to provide certain services (Special)
96-567	Approves agreement with U.S. Marshals Service for housing of federal inmates (Special)
96-568	Grants privilege to install fiber optic cable (Special)
96-569	Adds § 6.32.040, hucksters and peddlers (6.32)
96-570	Approves grant contract with state to provide case support services (Special)
96-571	Approves grant contract with state to provide custody prevention services (Special)
96-572	Adds language to § 17.28.370(A), zoning (Repealed by 96-555)
Amdt. 1	Amends § 1 of Ord. 96-572 (Repealed by 96-555)
96-573	Approves certain lease agreement (Special)
96-574	Amends zoning map (Special)
96-575	Amends zoning map (Special)
96-576	Amends zoning map (Special)
96-577	Rezone (Special)
96-578	Rezone (Special)
96-579	Joint use of access easement agreement (Special)
96-580	Acquisition of property for utility easements (Special)
96-581	Accepts state contract for certain intersection improvements (Special)
96-582	Adopts official street and alley acceptance and maintenance map (Special)
96-583	Approves state grant for urban and community forestry (Special)
96-584	Amends §§ 10.56.010, 10.56.080(B), 10.56.160 and 10.56.280(D), air pollution control (10.56)
96-585	Approves certain sublease agreement (Special)
96-586	Authorizes payments in lieu of taxes for certain business (Special)

Ordinance Number	Disposition
Amdt. 1	Repeals and replaces § 3(5) of Ord. 96-586 (Special)
96-587	Rezone (Special)
96-588	Rezone (Special)
96-589	Rezone (Special)
96-590	Rezone (Special)
96-591	Amends zoning map (Special)
96-592	Repeals and replaces § 17.12.070(E)(13), zoning (Repealed by 96-555)
96-593	Rezone (Special)
96-594	(Withdrawn)
96-595	(Defeated)
96-596	(Withdrawn)
96-597	Amends zoning map (Special)
96-598	Rezone (Special)
96-599	Rezone (Special)
96-600	Rezone (Special)
96-601	Rezone (Special)
96-602	Amends zoning map (Special)
96-603	Alley closure (Special)
96-604	Street name change (Special)
96-605	Alley closure (Special)
96-606	Abandons certain public utility and drainage easements (Special)
96-607	Rezone (Special)
96-608	(Withdrawn)
96-609	Approves Amdt. 17 to the urban renewal plan for the University Center urban renewal area (Special)
96-610	Acquisition of property for utility easements (Special)
96-611	Approves certain sublease agreement (Special)
Amdt. 1	Adds architectural floor plan to sublease agreement approved in Ord. 96-611 (Special)
96-612	Repeals and replaces Ch. 6.80, wrecker and towing services (6.80)
96-613	Acquisition of property for utility easements (Special)
96-614	Accepts certain water and sanitary sewerage facilities (Special)
96-615	Authorizes certain utility contract with state (Special)
96-616	Approves joint funding agreement for flow gauging stations (Special)
96-617	Street closure (Special)
96-618	(Withdrawn)
96-619	(Withdrawn)
97-620	Adds subsections (G) and (H) to § 17.120.050 and (D) to § 17.120.060; amends § 17.120.040, zoning (Repealed by 96-555)
Amdt. 1	Adds § 5 to Ord. 97-620 and renumbers § 5 to be § 6, amending § 17.120.070, zoning (Repealed by 96-555)
Amdt. 2	Amends § 2 of Ord. 97-620, zoning (Repealed by 96-555)
97-621	(Withdrawn)
97-622	Amends zoning map (Special)
97-623	Approves sale of certain property (Special)
97-624	Approves sale of certain property (Special)
97-625	(Withdrawn)
97-626	Street and alley closures (Special)
97-627	Approves certain contract in lieu of performance bond (Special)
97-628	Authorizes sale of certain property (Special)
97-629	Authorizes sale of certain property (Special)
97-630	Authorizes sale of certain property (Special)
97-631	Authorizes sale of certain property (Special)
97-632	Authorizes sale of certain property (Special)
97-633	Authorizes sale of certain property (Special)
97-634	Authorizes certain utility contract (Special)
97-635	Approves state grant to implement the urban and community forestry grant assistance program (Special)
97-636	Accepts state proposal for construction of certain improvements (Special)
97-637	Accepts state proposal for construction of certain improvements (Special)
97-638	Street name change (Special)
97-639	Amends zoning map (Special)
97-640	(Withdrawn)
97-641	(Withdrawn)
97-642	(Withdrawn)
97-643	(Withdrawn)
97-644	Abandons certain sanitary sewer easements (Special)
97-645	Street name change (Special)
97-646	Street name change (Special)
97-647	Amends zoning map (Special)
97-648	Amends zoning map (Special)
97-649	Amends zoning map (Special)
Amdt. 1	Amends § 1 of Ord. 97-649 (Special)
97-650	Rezone (Special)
97-651	Approves sale of certain property (Special)
97-652	Approves contract for professional services to manage the medical examiner's office (Special)
Amdt. 1	Substitutes new contract for contract attached to Ord. 97-652 (Special)

Ordinance Number	Disposition
97-653	Authorizes acceptance of state grant for waste tire storage and disposal (Special)
97-654	Accepts contribution in aid for certain sewer improvements (Special)
97-655	(Withdrawn)
97-656	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends § 3 of Ord. 97-656 (Special)
97-657	Amends official street and alley acceptance and maintenance map (Special)
97-658	Authorizes acquisition of certain property (Special)
Amdt. 1	Amends first whereas clause of Ord. 97-658 (Special)
Amdt. 2	Amends first whereas clause of Ord. 97-658 (Special)
97-659	Amends zoning map (Special)
97-660	Rezone (Special)
97-661	Rezone (Special)
97-662	(Withdrawn)
97-663	Amends official street and alley acceptance and maintenance map (Special)
97-664	Rezone (Special)
97-665	Rezone (Special)
97-666	Rezone (Special)
97-667	(Withdrawn)
97-668	Rezone (Special)
97-669	Amends zoning map (Special)
97-670	Rezone (Special)
97-671	Amends zoning map (Special)
Amdt. 1	Amends § 1 of Ord. 97-671 (Special)
97-672	Amends zoning map (Special)
97-673	Rezone (Special)
97-674	Rezone (Special)
97-675	Rezone (Special)
97-676	Rezone (Special)
97-677	(Withdrawn)
97-678	Amends § 2.24.370, relocation assistance payments (2.24)
Amdt. 1	Adds new § 2 to and renumbers § 2 to be § 3 of Ord. 97-678 (Not codified)
97-679	Approves joint mutual aid agreement for the EMS mutual aid response (Special)
97-680	Authorizes conveyance of certain property (Special)
97-681	Creates two additional divisions of the metropolitan general sessions court; two additional metropolitan general sessions judges, and other essential personnel to staff such divisions (Special)
Amdt. 1	Adds § 3 to Ord. 97-681 (Special)
97-682	(Failed)
97-683	Authorizes sale of certain property (Special)
Amdt. 1	Amends § 2 of Ord. 97-683 (Special)
97-684	Accepts donation of certain property (Special)
97-685	Amends the official street and alley acceptance and maintenance map (Special)
Amdt. 1	Adds language to § 4 of Ord. 97-685 (Special)
97-686	Authorizes certain utility contract with state (Special)
97-687	Approves certain state grant to implement the urban and community forestry grant assistance program (Special)
97-688	(Withdrawn)
97-689	(Withdrawn)
97-690	(Withdrawn)
97-691	Adds § 6.72.165, mandatory participation in hospitality training program (Repealed by BL2000-325)
97-692	Authorizes construction of certain underground parking facility (Special)
97-693	Amends the official street and alley acceptance and maintenance map (Special)
97-694	Authorizes acquisition of certain property for public open space or other public use (Special)
97-695	Authorizes acceptance of a contract with the state for transportation improvements (Special)
97-696	Authorizes acceptance of a contract with the state for transportation improvements (Special)
97-697	Approves contract with state for installing of a flashing beacon sign (Special)
97-698	Authorizes acceptance of a contract with the state for transportation improvements (Special)
97-699	Authorizes contract with state to further the urban and community forestry grant assistance program (Special)
97-700	Approves state grant for the local emergency management operating budget (Special)
97-701	Authorizes acquisition of certain property for road improvements (Special)
97-702	Approves certain lease agreement (Special)
97-703	Accepts donation for improvements to the juvenile detention facility (Special)
Amdt. 1	Amends § 1 of Ord. 97-703 (Special)
97-704	Approves certain memorandum of agreement (Special)
97-705	Approves an amendment to certain lease agreement (Special)
97-706	Approves state grant to the Nashville public library (Special)

Ordinance Number	Disposition
97-707	Authorizes acceptance of contract with state for transportation improvements (Special)
97-708	Easement vacation (Special)
97-709	Amends the official street and alley acceptance and maintenance map (Special)
97-710	Amends the official street and alley acceptance and maintenance map (Special)
97-711	Amends the official street and alley acceptance and maintenance map (Special)
97-712	Amends the official street and alley acceptance and maintenance map (Special)
97-713	Amends zoning map (Special)
97-714	(Defeated)
97-715	(Defeated)
97-716	Repeals and replaces § 3 of Ord. 92-340, zoning map (Special)
97-717	Amends zoning map (Special)
97-718	Rezone (Special)
97-719	Amends zoning map (Special)
97-720	Amends §§ 17.12.080 and 17.60.020(B) and Tables 17.72.100(A) and 17.72.220, zoning (Repealed by 96-555)
97-721	Adds §§ 17.24.030(A)(19) and 17.124.440, zoning (Repealed by 96-555)
97-722	Adds definitions to Ch. 17.04; repeals and replaces §§ 17.04.550, 17.24.030(18) and 17.124.430, zoning; repeals Ch. 17.122 (Repealed by 96-555)
Amdt. 1	Amends § 1(B) of Ord. 97-722, zoning (Repealed by 96-555)
97-723	Amends §§ 4.20.090 and 4.20.100, procurement of construction contracts (4.20)
97-724	Approves contract with city of Ridgetop for sewerage services (Special)
97-725	Approves sale of certain property (Special)
97-726	Authorizes acquisition of certain property for utility easements (Special)
97-727	Authorizes acquisition of certain property for utility easements (Special)
97-728	Authorizes acquisition of certain property for utility easements (Special)
97-729	Amends §§ 1.01.030(B) and 15.04.050; repeals §§ 15.60.350 through 15.60.470 and adds §§ 15.60.350 through 15.60.460, wastewater hearing authority (1.01, 15.04, 15.60)
97-730	Approves grant agreement with state for developing household hazardous waste collection site (Special)
97-731	Approves grant agreement with state for maintaining and operating household hazardous waste collection site (Special)
97-732	Approves certain lease agreement (Special)
97-733	Amends the official street and alley acceptance and maintenance map (Special)
97-734	Amends the official street and alley acceptance and maintenance map (Special)
97-735	Rezone (Special)
97-736	Rezone (Special)
97-737	Amends zoning map (Special)
97-738	Amends zoning map (Special)
97-739	Rezone (Special)
97-740	Amends zoning map (Special)
97-741	Rezone (Special)
97-742	Amends zoning map (Special)
97-743	(Withdrawn)
97-744	(Withdrawn)
97-745	Amends zoning map (Special)
97-746	Amends zoning map (Special)
97-747	Rezone (Special)
97-748	Amends zoning map (Special)
97-749	Amends zoning map (Special)
97-750	Rezone (Special)
97-751	Authorizes construction of an underground parking facility (Special)
97-752	Amends the official street and alley acceptance and maintenance map (Special)
97-753	Approves name for Fire Station 29 (Special)
97-754	Approves Amendment No. 4 to the Rutledge Hill redevelopment plan (Special)
97-755	Approves Amendment No. 4 to the Capitol Mall redevelopment plan (Special)
97-756	Approves sale of certain property (Special)
97-757	Repeals Ord. 95-86 and Ch. 10.70 (Repealer)
97-758	Repeals Ords. 76-195 and 86-1175 and Ch. 6.36 (Repealer)
97-759	Approves an amendment to certain memorandum of understanding (Special)
Amdt. 1	Amends Ord. 97-759 § 2 (Special)
97-760	Authorizes sale of certain property (Special)
Amdt. 1	Repeals and replaces § 2 of Ord. 97-760 (Special)
97-761	Amends the official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends § 1 of Ord. 97-761 (Special)
97-762	Amends the official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends § 2 of Ord. 97-762 (Special)
97-763	Rezone (Special)
97-764	Amends the official street and alley acceptance and maintenance map (Special)
97-765	Rezone (Special)
97-766	(Withdrawn)
97-767	(Withdrawn)
97-768	(Withdrawn)

Ordinance Number	Disposition
97-769	(Withdrawn)
97-770	Abandons certain sewer easements (Special)
97-771	Authorizes acceptance of contribution in aid for construction of certain sewer improvements (Special)
97-772	Repeals and replaces § 13.24.090(B)(4), parks, recreation facilities and cemeteries (13.24)
97-773	Authorizes construction of private telecommunications cables (Special)
97-774	(Withdrawn)
97-775	Alley closures (Special)
97-776	Alley closures (Special)
97-777	Amends the official street and alley acceptance and maintenance map (Special)
97-778	Rezone (Special)
97-779	Rezone (Special)
97-780	Adds Ch. 10.86, blighted property (10.86)
97-781	Accepts donation from the metropolitan police education fund (Special)
97-782	Authorizes acquisition of property for signal installation (Special)
97-783	Approves sale of certain property (Special)
97-784	Authorizes acceptance of state proposal for certain improvements (Special)
97-785	Repeals and replaces Ch. 13.20, excavations and obstructions (13.20)
97-786	Authorizes acceptance of state contract for certain improvements (Special)
97-787	Approves certain memorandum of understanding (Special)
97-788	Approves certain memorandum of understanding (Special)
97-789	Amends the official street and alley acceptance and maintenance map (Special)
97-790	Amends the official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends § 1 of Ord. 97-790 (Special)
97-791	Capital improvements budget and program 1997—1998 through 2002—2003 (Special)
Amdt. 1	Amends Ord. 97-791 (Special)
Amdt. 2	Amends Ord. 97-791 (Special)
Amdt. 3	Amends Ord. 97-791 (Special)
Amdt. 4	Amends Ord. 97-791 (Special)
Amdt. 5	Amends Ord. 97-791 (Special)
Amdt. 6	Amends Ord. 97-791 (Special)
Amdt. 7	Amends Ord. 97-791 (Special)
Amdt. 8	Amends Ord. 97-791 (Special)
Amdt. 9	Amends Ord. 97-791 (Special)
Amdt. 10	Amends Ord. 97-791 (Special)
Amdt. 11	Amends Ord. 97-791 (Special)
Amdt. 12	Amends Ord. 97-791 (Special)
Amdt. 13	Amends Ord. 97-791 (Special)
Amdt. 14	Amends Ord. 97-791 (Special)
Amdt. 15	Amends Ord. 97-791 (Special)
Amdt. 16	Amends Ord. 97-791 (Special)
Amdt. 17	Amends Ord. 97-791 (Special)
Amdt. 18	Amends Ord. 97-791 (Special)
Amdt. 19	Amends Ord. 97-791 (Special)
Amdt. 20	Amends Ord. 97-791 (Special)
Amdt. 21	Amends Ord. 97-791 (Special)
Amdt. 22	Amends Ord. 97-791 (Special)
Amdt. 23	Amends Ord. 97-791 (Special)
Amdt. 24	Amends Ord. 97-791 (Special)
Amdt. 25	Amends Ord. 97-791 (Special)
97-792	1997—1998 budget (Special)
97-793	Tax levy (Special)
97-794	Readopts code (1.01)
97-795	(Withdrawn)
97-796	Adds Ch. 6.54, sexually oriented businesses (6.54)
Amdt. 1	Adds subsection (F) [E] to § 6.54.070, sexually oriented businesses (6.54)
Amdt. 2	Amends § 2 [second] of Ord. 97-796 (Not codified)
Amdt. 3	Amends §§ 6.54.010(A)(2)(a) and (e), sexually oriented businesses (6.54)
Amdt. 4	Adds language to § 6.54.130(C), sexually oriented businesses (6.54)
Amdt. 5	Adds §§ 6.54.110(C) and 6.54.110(D), sexually oriented businesses (6.54)
Amdt. 6	Amends §§ 6.54.030(F), 6.54.040(E)(2), 6.54.060, 6.54.070(D)(7), 6.54.100(M), 6.54.110, 6.54.130(A) and (C), and 6.54.160, sexually oriented businesses; deletes §§ 6.54.110(C) and 6.54.130(D) (6.54)
Amdt. 7	Changes the words "adult entertainment" to "sexually oriented" throughout Ord. 97-796, with certain exceptions (6.54)
97-797	Fee system for reproduction of computer-generated maps by planning commission; repeals Ord. 93-647 (2.136)
97-798	Approves certain memorandum of understanding (Special)
97-799	Approves cooperative agreement with U.S. Department of Justice (Special)
Amdt. 1	Amends § 2 of Ord. 97-799 (Special)
97-800	Acquisition of property for utility easements (Special)
97-801	Authorizes payment of contribution in aid for certain sewer improvements (Special)
97-802	Authorizes payment of contribution in aid for certain sewer improvements (Special)
97-803	Approves transfer of control of cable franchise (Special)
97-804	Approves transfer of control of cable franchise (Special)

Ordinance Number	Disposition
97-805	Approves transfer of control of cable franchise (Special)
97-806	Approves transfer of control of cable franchise (Special)
97-807	Rezone (Special)
97-808	Amends zoning map (Special)
Amdt. 1	Amends Ord. 97-808 (Special)
97-809	(Withdrawn)
97-810	Rezone (Special)
97-811	(Withdrawn)
97-812	(Withdrawn)
97-813	(Defeated)
97-814	Rezone (Special)
97-815	Rezone (Special)
97-816	Amends zoning map (Special)
97-817	Amends zoning map (Special)
Amdt. 1	Substitutes new plan for plan referenced in § 1 of Ord. 97-817 (Special)
97-818	Amends official street and alley acceptance and maintenance map (Special)
97-819	Grant of easement (Special)
97-820	Rezone (Special)
97-821	Rezone (Special)
97-822	Rezone (Special)
97-823	Rezone (Special)
97-824	Amends zoning map (Special)
97-825	Rezone (Special)
97-826	(Withdrawn)
97-827	Amends zoning map (Special)
97-828	Amends official street and alley acceptance and maintenance map (Special)
97-829	Amends Ch. 10.28, Metropolitan Beautification and Environment Commission (10.28)
97-830	Approves certain lease agreement (Special)
97-831	Approves contract with Nashville Area Chamber of Commerce (Special)
Amdt. 1	Adds Amendment No. 1 to the contract approved by Ord. 97-831 (Special)
97-832	Alley closure (Special)
97-833	(Defeated)
97-834	Rezone (Special)
97-835	(Defeated)
97-836	(Defeated)
97-837	Rezone (Special)
97-838	Rezone (Special)
97-839	Approves contract with state for juvenile case support services (Special)
97-840	(Withdrawn)
97-841	Approves state grant for disaster assistance (Special)
97-842	Authorizes acceptance of donation for drainage improvements (Special)
97-843	Abandons portion of certain drainage easement (Special)
97-844	Approves contract with Tennessee Department of Transportation concerning signalization of certain intersection (Special)
97-845	Repeals and replaces Ch. 2.140, public records commission (2.140)
Amdt. 1	Adds § 4 to Ord. 97-845 (Not codified)
97-846	Approves sale of certain surplus property (Special)
Amdt. 1	Repeals and replaces § 3 of Ord. 97-846 (Special)
97-847	Authorizes acquisition of certain property for right-of-way easement (Special)
97-848	Authorizes acquisition of certain property for right-of-way easement (Special)
97-849	Approves transfer of certain property to the metropolitan development and housing agency (Special)
97-850	Approves transfer of certain property to the metropolitan development and housing agency (Special)
97-851	Authorizes payment of a contribution in aid for certain sewer improvements (Special)
97-852	Accepts state proposal for intersection improvements (Special)
97-853	Adopts property identification maps (Special)
97-854	Authorizes the metropolitan social services commission to administer the Davidson County Caring for Children Program and to enter into contracts for services (Special)
Amdt. 1	Amends § 1 of Ord. 97-854 (Special)
97-855	Approves grant from the state for domestic violence prevention program (Special)
97-856	Property tax relief program for low-income elderly residents for 1997-1998 (Special)
97-857	Amends § 3.08.110(E), metropolitan employee benefit system (3.08)
97-858	(Withdrawn)
97-859	Accepts donation of certain conservation easement (Special)
97-860	Accepts donation of certain conservation easements (Special)
97-861	Approves state grant for development of the downtown greenway (Special)
97-862	Authorizes acquisition of certain property for utility easement (Special)
97-863	Authorizes acceptance of a contribution in aid for certain water service improvements (Special)
97-864	Approves grant contract with state for litter collection and prevention (Special)
97-865	Extends the solid waste management grant from the state for establishment and upgrading of convenience centers (Special)

Ordinance Number	Disposition
97-866	Approves state grant for the collection and disposal of waste tires (Special)
97-867	Authorizes acceptance of certain donation for intersection improvements (Special)
97-868	(Failed)
97-869	Approves agreement with U.S. Bureau of Alcohol, Tobacco and Firearms for the reimbursement of certain overtime costs (Special)
97-870	Authorizes acquisition of certain property for right-of-way easement (Special)
97-871	Abandons a portion of certain drainage easement (Special)
97-872	Approves state grant for library services (Special)
97-873	Approves a drug control and systems improvement contract for the office of the district attorney general and providing matching funds (Special)
97-874	Approves a drug control and systems improvement contract for the office of the district attorney general and providing matching funds (Special)
97-875	Approves a drug control and systems improvement contract for the office of the district attorney general and providing matching funds (Special)
97-876	Approves a drug control and systems improvement contract for the office of the district attorney general and providing matching funds (Special)
97-877	Approves a drug control and systems improvement contract for the metropolitan police department and providing matching funds (Special)
97-878	Approves a drug control and systems improvement contract for the metropolitan police department and providing matching funds (Special)
97-879	Approves a drug control and systems improvement contract for the metropolitan police department and providing matching funds (Special)
97-880	Approves a drug control and systems improvement contract for the metropolitan office of the public defender and providing matching funds (Special)
97-881	Approves a drug control and systems improvement contract for the metropolitan office of the public defender and providing matching funds (Special)
97-882	Approves a drug control and systems improvement contract for the metropolitan office of the public defender and providing matching funds (Special)
97-883	Approves a drug control and systems improvement contract for the metropolitan sheriff's office and providing matching funds (Special)
97-884	Approves a drug control and systems improvement contract for the metropolitan sheriff's office and providing matching funds (Special)
97-885	Approves a drug control and systems improvement contract for the metropolitan state trial courts and providing matching funds (Special)
97-886	Approves a drug control and systems improvement contract for the metropolitan office of the public defender and accepts certain donation (Special)
97-887	(Withdrawn)
97-888	Rezone (Special)
97-889	Rezone (Special)
97-890	Rezone (Special)
97-891	Amends zoning map (Special)
97-892	Amends zoning map (Special)
97-893	Rezone (Special)
97-894	Rezone (Special)
97-895	Amends zoning map (Special)
Amdt. 1	Substitutes plan for plan referenced in Ord. 97-895 (Special)
97-896	Rezone (Special)
97-897	Amends zoning map (Special)
97-898	Rezone (Special)
97-899	(Defeated)
97-900	(Withdrawn)
97-901	Amends zoning map (Special)
97-902	(Withdrawn)
97-903	Rezone (Special)
Amdt. 1	Amends Ord. 97-903 § 1 (Special)
97-904	Rezone (Special)
97-905	Rezone (Special)
97-906	(Withdrawn)
97-907	Amends zoning map (Special)
97-908	Rezone (Special)
97-909	(Failed)
97-910	Rezone (Special)
97-911	Amends zoning map (Special)
Amdt. 1	Substitutes new plan for plan referenced in Ord. 97-911 (Special)
97-912	Rezone (Special)
97-913	Grants telecommunications franchise to TCG MidSouth, Inc. (Special)

Ordinance Number	Disposition
97-914	Accepts contract with state for traffic guidance system (Special)
97-915	Approves contract between the metropolitan general sessions court and PEACE, Inc. (Special)
97-916	Approves contract with the Emergency Communications District (Special)
97-917	Authorizes acquisition of property for easements (Special)
97-918	Grants certain easements (Special)
97-919	(Vetoed)
97-920	Amends § 17.04.856, zoning (Repealed by 96-555)
Amdt. 1	Amends § 1 of Ord. 97-920, zoning (Repealed by 96-555)
97-921	(Withdrawn)
97-922	(Withdrawn)
97-923	Authorizes acquisition of property for utility easements (Special)
97-924	Amends § 7.08.090, beer and alcoholic beverages of less than five percent (7.08)
97-925	Amends the official street and alley acceptance and maintenance map (Special)
97-926	(Withdrawn)
97-927	Adds §§ 2.10.040, 2.10.050 and 2.10.060; amends § 2.10.020, office of emergency management (2.10)
97-928	Approves state grant for arson prevention (Special)
97-929	Approves joint mutual aid agreement with the city of Greenbriar for emergency assistance (Special)
97-930	Approves contract for the promotion of tourism with Pennington Bend tourist development commission (Special)
97-931	Amends the official street and alley acceptance and maintenance map (Special)
97-932	Amends the official street and alley acceptance and maintenance map (Special)
97-933	Authorizes the acceptance of certain donations (Special)
Amdt. 1	Repeals and replaces § 1 of Ord. 97-933 (Special)
97-934	Amends the official street and alley acceptance and maintenance map (Special)
97-935	Street closure (Special)
97-936	(Withdrawn)
97-937	Rezone (Special)
97-938	Rezone (Special)
97-939	Rezone (Special)
97-940	Amends zoning map (Special)
97-941	Rezone (Special)
97-942	Rezone (Special)
97-943	Amends zoning map (Special)
97-944	Amends zoning map (Special)
97-945	Amends zoning map (Special)
97-946	Amends zoning map (Special)
97-947	Amends zoning map (Special)
97-948	Rezone (Special)
97-949	(Withdrawn)
97-950	(Failed)
97-951	(Failed)
97-952	Adopts a Private Act of the Tennessee General Assembly to allow the probate court to become the division seven circuit court of the twentieth judicial district (Special)
97-953	(Withdrawn)
97-954	Approves certain lease agreement (Special)
97-955	Approves transfer of certain property to the metropolitan development and housing agency (Special)
97-956	Approves certain lease agreement (Special)
97-957	Accepts contribution in aid for certain sewer improvements (Special)
97-958	Approves an amendment to the agreement with the U.S. Marshals Service for the housing of federal inmates (Special)
97-959	Approves state grant for the Stop the Violence Against Women program (Special)
97-960	Approves grant from U.S. Department of Justice (Special)
97-961	Approves state grant for certain juvenile court services (Special)
97-962	Approves state grant for certain child support services (Special)
97-963	Abandons certain sewer easement (Special)
97-964	Amends the official street and alley acceptance and maintenance map (Special)
97-965	Street closure (Special)
97-966	Amends the official street and alley acceptance and maintenance map (Special)
97-967	Amends the official street and alley acceptance and maintenance map (Special)
97-968	Amends zoning map (Special)
97-969	Amends zoning map (Special)
97-970	Rezone (Special)
97-971	Rezone (Special)
97-972	Rezone (Special)
97-973	Rezone (Special)
97-974	Amends zoning map (Special)
97-975	Amends zoning map (Special)
97-976	Amends zoning map (Special)
97-977	Amends zoning map (Special)
97-978	Rezone (Special)
97-979	Rezone (Special)
97-980	Amends zoning map (Special)
97-981	Rezone (Special)

Ordinance Number	Disposition
97-982	Amends zoning map (Special)
97-983	Adds Ch. 2.208, mayor's office of film and special events (2.208)
97-984	Approves certain grant contract with U.S. Department of Justice for the Drug Court Implementation Initiative IIA Project (Special)
97-985	Accepts state grant for the benefit of the commission on beautification and the environment and approves matching funds (Special)
97-986	Accepts state grant for the urban and community forestry grant assistance program and approves matching funds (Special)
97-987	Amends zoning map (Special)
97-988	Amends the official street and alley acceptance and maintenance map (Special)
97-989	Amends the official street and alley acceptance and maintenance map (Special)
97-990	(Withdrawn)
97-991	Accepts state grant for a victim intervention program (Special)
97-992	Approves Amendment No. 18 to the urban renewal plan for the University Center urban renewal area (Special)
Amdt. 1	Amends § 1, deletes §§ 2 and 3 and renumbers § 4 to be 2 of Ord. 97-992 (Special)
97-993	Authorizes certain utility contract with the state (Special)
97-994	Acquisition of property for utility easements (Special)
97-995	Authorizes submittal of annual update to consolidated plan for housing and community development programs (Special)
97-996	(Withdrawn)
97-997	Amends the official street and alley acceptance and maintenance map (Special)
97-998	(Withdrawn)
97-999	Adds sentence to § 2.16.010(A), public defender (2.16)
97-1000	Adds language to § 4.12.090(B), source selection and contract formation (4.12)
97-1001	Accepts donation of contribution in aid for construction of certain turn lane (Special)
97-1002	Approves acceptance of law enforcement block grant from U.S. Department of Justice (Special)
Amdt. 1	Amends attachment to Ord. 97-1002 (Special)
97-1003	Approves grant from U.S. Department of Justice for Auto Theft Reduction Project (Special)
97-1004	Authorizes acquisition of certain property for utility easements (Special)
97-1005	Adopts official street and alley acceptance and maintenance map (Special)
97-1006	Amends official street and alley acceptance and maintenance map (Special)
97-1007	Rezone (Special)
97-1008	Sale of certain surplus property (Special)
97-1009	Readopts code (1.01)
97-1010	Approves state grant for branch library and learning resources center construction project (Special)
97-1011	Approves state grant for materials to be added to the Tennessee Public Library Database (Special)
97-1012	(Withdrawn)
97-1013	Bond issuance (Special)
97-1014	Approves contract with state for custody intervention services (Special)
97-1015	Approves contract between metropolitan general sessions court and Kelly Miller Smith Center Against Abusive Behavior (Special)
97-1016	Non-stormwater discharges into the separate storm sewer system (15.64)
97-1017	Acquisition of certain property for certain road improvements (Special)
97-1018	Adds subsection (C) to §§ 3.32.030 and 3.36.030; amends §§ 3.08.010, 3.08.170(A)(1), 3.08.171(A)(1), 3.28.050(C) and 3.29.050(C) [3.29.050(B)], revenue and finance (3.08, 3.28, 3.29, 3.32, 3.36)
97-1019	Amends certain lease agreement (Special)
97-1020	Amends the official street and alley acceptance and maintenance map (Special)
97-1021	Approves acquisition of existing low-rent housing (Special)

Ordinance Number	Disposition
97-1022	Adds definitions to § 6.54.010; adds subsection (B)(5) to § 6.54.050 and (E)(6) to § 6.54.150; adds § 6.54.080 and renumbers §§ 6.54.080—6.54.170 to be 6.54.090—6.54.180; adds subsection (B) to § 6.54.150 and renumbers subsequent subsections; amends §§ 6.54.040(A)(1), (B)—(E), 6.54.040(A)(5)(d), 6.54.050(B)(2), 6.54.050(B)(4), 6.54.070(A) and (E)(2), 6.54.110(A), (B) and (K), 6.54.130(A), (C), (G) and (I), 6.54.150(E)(1) and (4); substitutes "circuit or chancery courts" for "chancery court" throughout Ch. 6.54; repeals and replaces §§ 6.54.020(G)(6), 6.54.030(A) and (F), 6.54.040(A)(5)(e), 6.54.050(B)(3)(a) and (c), 6.54.060(A) and (B), 6.54.070(B), (C) and (D), 6.54.110(L) and (M), 6.54.150(A)(8)—(10) and (D) and 6.54.150(E)(2), (3) and (5), sexually oriented businesses; deletes §§ 6.54.040(A)(5)(d) and 6.54.130(G) and reletters subsequent paragraphs; deletes last sentence from §§ 6.54.020(G)(3) (6.54)
97-1023	Approves agreement of exchange with Hospital Corporation of America (Special)
97-1024	Approves state grant to implement the urban and community forestry grant assistance program (Special)
97-1025	Authorizes acceptance of certain contribution in aid (Special)
97-1026	Approves certain joint funding agreement with U.S. Department of the Interior for evaluation of water quality (Special)
97-1027	Sale of certain surplus property (Special)
97-1028	Authorizes acquisition of property for drainage improvements (Special)
97-1029	Authorizes payment of contribution in aid for sewer improvements (Special)
97-1030	Approves amendment to agreement with city of Brentwood for wastewater transportation and treatment capacity (Special)
97-1031	Authorizes acquisition of property for sewer improvements (Special)
97-1032	Authorizes acceptance of contribution in aid for sewer improvements (Special)
97-1033	Authorizes acquisition of property for utility easements (Special)
97-1034	(Withdrawn)
97-1035	(Withdrawn)
97-1036	(Withdrawn)
98-1037	Adds Ch. 2.174, central business district (2.174)
Amdt. 1	Amends Ord. 97-1037, central business district (2.174)
98-1038	Approves state grant for improvement of juvenile court services (Special)
98-1039	Amends the official street and alley acceptance and maintenance map (Special)
98-1040	(Withdrawn)
98-1041	Transfer of certain property (Special)
98-1042	Approves contract with Vanderbilt University to permit student nurses to intern at the juvenile court detention facility (Special)
98-1043	Property conveyance (Special)
98-1044	Approves amended and restated lease agreement for Greer Stadium (Special)
Amdt. 1	Substitutes pages 12 and 18 of the lease agreement adopted by Ord. 98-1044 with new pages 12 and 18 (Special)
98-1045	Rezone (Special)
98-1046	Rezone (Special)
98-1047	(Failed)
98-1048	Adds subsection (C) to § 15.12.240, water and sewer service system (15.12)
Amdt. 1	Amends § 1 of Ord. 98-1048, water and sewer service system (15.12)
98-1049	Authorizes acquisition of certain property for new school facility (Special)
98-1050	Authorizes acquisition of certain property for new school facility (Special)
98-1051	Authorizes acquisition of certain property for new school facility (Special)
98-1052	Approves amendment to agreement with Madison suburban utility district for billing and collection services (Special)
98-1053	Approves agreement with Tennessee Walking Horse Breeders' and Exhibitors' Association for donation of walking horses (Special)
98-1054	Authorizes acceptance of contract with state for certain intersection improvements (Special)
98-1055	Authorizes acceptance of contract with state for certain intersection improvements (Special)
98-1056	Authorizes acceptance of contract with state for certain intersection improvements (Special)
98-1057	Approves certain lease agreement (Special)
98-1058	Approves certain lease agreement (Special)
98-1059	Utility and drainage easement abandonment (Special)
98-1060	Rezone (Special)
98-1061	(Withdrawn)
98-1062	Rezone (Special)
98-1063	Amends zoning map (Special)
98-1064	Rezone (Special)
98-1065	Rezone (Special)

Ordinance Number	Disposition
98-1066	Rezone (Special)
98-1067	Rezone (Special)
98-1068	Rezone (Special)
98-1069	(Withdrawn)
98-1070	(Withdrawn)
98-1071	Rezone (Special)
98-1072	Amends zoning map (Special)
98-1073	Rezone (Special)
98-1074	Amends zoning map (Special)
98-1075	Rezone (Special)
98-1076	(Withdrawn)
98-1077	Amends zoning map (Special)
98-1078	Rezone (Special)
Amdt. 1	Amends Ord. 98-1078 (Special)
98-1079	Amends zoning map (Special)
98-1080	Amends zoning map (Special)
98-1081	Rezone (Special)
98-1082	(Withdrawn)
98-1083	Amends zoning map (Special)
Amdt. 1	Amends Ord. 98-1083 (Special)
98-1084	Rezone (Special)
Amdt. 1	Amends Ord. 98-1084 (Special)
98-1085	Rezone (Special)
98-1086	Rezone (Special)
98-1087	Amends zoning map (Special)
98-1088	Amends zoning map (Special)
98-1089	(Failed)
98-1090	Rezone (Special)
98-1091	Rezone (Special)
98-1092	Amends zoning map (Special)
98-1093	Rezone (Special)
98-1094	(Withdrawn)
98-1095	(Withdrawn)
98-1096	Rezone (Special)
98-1097	Rezone (Special)
98-1098	Rezone (Special)
98-1099	(Withdrawn)
98-1100	Rezone (Special)
98-1101	Rezone (Special)
98-1102	Rezone (Special)
98-1103	Amends zoning map (Special)
Amdt. 1	Amends Ord. 98-1103 (Special)
98-1104	Rezone (Special)
98-1105	Rezone (Special)
98-1106	Rezone (Special)
98-1107	Amends zoning map (Special)
Amdt. 1	Amends § 1 of Ord. 98-1107 (Special)
98-1108	(Failed)
98-1109	Amends § 10.20.287; repeals § 10.20.330A, solid waste collection (10.20)
Amdt. 1	Amends Section 10.20.287(A) of Ord. 98-1109 (10.20)
Amdt. 2	Amends Section 1, paragraph (B) of Ord. 98-1109 (10.20)
98-1110	Repeals and replaces § 10.20.200, tip fees (10.20)
98-1111	Authorizes Project IM 65 3(95)83, contract (Special)
Amdt. 1	Amends contract p. 2 (Special)
98-1112	Approves easement (Special)
98-1113	Approves grant contract with state for library services for children in poverty (Special)
98-1114	Authorizes acceptance of state proposal for certain improvements (Special)
98-1115	Approves grant for Learn and Serve program (Special)
98-1116	Accepts grant for juvenile court grief and loss group (Special)
98-1117	Authorizes acquisition of property for utility easements (Special)
98-1118	Approves traffic signal contract (Special)
98-1119	(Failed)
98-1120	Adds Ch. 13.10, acceptance of private roads (13.10)
98-1121	Accepts donation for infrastructure improvements (Special)
98-1122	Authorizes acceptance of funds for certain sewer improvements (Special)
98-1123	Authorizes acquisition of property for additional utility easements (Special)
98-1124	Amends 8/9/84 trunk and treatment services agreement (Special)
98-1125	Authorizes reimbursement of ATF overtime costs (Special)
98-1126	Amends the official street and alley acceptance and maintenance map (Special)
98-1127	Adds § 2.62.055; amends § 2.62.010(C), Music City and Music City USA licensing (2.62)
Amdt. 1	Renumbers § 3 of Ord. 98-1127 to be § 4 and adds new § 3 (2.62)
98-1128	Authorizes conveyance of certain property (Special)
98-1129	Approves sale of certain property (Special)
98-1130	(Withdrawn)
98-1131	Authorizes acquisition of property for utility easement (Special)
98-1132	Abandons certain utility easements (Special)
98-1133	Amends the official street and alley acceptance and maintenance map (Special)
98-1134	Rezone (Special)
98-1135	(Withdrawn)
98-1136	Amends zoning map (Special)
98-1137	Acquisition of property for utility easements (Special)

Ordinance Number	Disposition
98-1138	Acquisition of property for public project 97-SC-5 (Special)
98-1139	Approves sale of certain property (Special)
98-1140	Approves agreements relating to project 84-PW-028 (Special)
98-1141	Repeals and replaces § 15.32.020 and Table 15.32.020, water rates and charges (Repealed by 99-1502)
98-1142	Abandons certain sewer easement (Special)
98-1143	Approves state grant for interlibrary loan net lending (Special)
98-1144	Amends official street and alley acceptance and maintenance map (Special)
98-1145	Amends official street and alley acceptance and maintenance map (Special)
98-1146	Rezone (Special)
98-1147	Rezone (Special)
98-1148	Rezone
Amdt. 1	Amends Ord. 98-1148 (Special)
98-1149	Rezone (Special)
98-1150	Rezone (Special)
98-1151	Rezone (Special)
Amdt. 1	Amends Ord. 98-1151 (Special)
98-1152	Rezone (Special)
98-1153	(Failed)
98-1154	Rezone (Special)
98-1155	Rezone (Special)
98-1156	Amends the official street and alley acceptance and maintenance map (Special)
98-1157	Rezone (Special)
98-1158	Rezone (Special)
Amdt. 1	Amends Ord. 98-1158 (Special)
98-1159	Rezone (Special)
98-1160	Cancels commercial PUD district at 5702 River Road (Special)
98-1161	Rezone (Special)
Amdt. 1	Amends Ord. 98-1161 (Special)
98-1162	Rezone (Special)
98-1163	(Withdrawn)
98-1164	Amends zoning map (Special)
98-1165	Amends zoning map (Special)
98-1166	Rezone (Special)
98-1167	(Withdrawn)
98-1168	(Withdrawn)
98-1169	(Withdrawn)
98-1170	(Defeated)
98-1171	Rezone (Special)
98-1172	Rezone (Special)
Amdt. 1	Amends Ord. 98-1172 (Special)
98-1173	(Withdrawn)
98-1174	Rezone (Special)
98-1175	Rezone (Special)
98-1176	(Failed)
98-1177	(Withdrawn)
98-1178	Approves Cops Problem Solving Partnership Assessment Project grant (Special)
98-1179	Approves Stop the Violence Against Women Discretionary Allocation Project grant (Special)
98-1180	Amends official street and alley acceptance and maintenance map (Special)
98-1181	Amends official street and alley acceptance and maintenance map (Special)
98-1182	Amends official street and alley acceptance and maintenance map (Special)
98-1183	(Withdrawn)
98-1184	(Withdrawn)
98-1185	Rezone (Special)
98-1186	Rezone (Special)
98-1187	Approves Amendment No. 5 to the Capitol Mall redevelopment project plan (Special)
98-1188	Approves Arts Center redevelopment plan (Special)
Amdt. 1	Amends Ord. 98-1188 (Special)
98-1189	Amends official tax map (Special)
98-1190	(Withdrawn)
98-1191	Repeals and replaces § 13.08.040; repeals §§ 6.76.070, 6.104.050 and 12.40.160, temporary sidewalk encroachments by street vendors, signs and performers (13.08)
Amdt. 1	Amends subsections (1)(B)(6)(b) and (1)(E) of Ord. 98-1191, sidewalks (13.08)
Amdt. 2	Amends subsection (B)(6) of Ord. 98-1191, sidewalks (13.08)
98-1192	(Withdrawn)
98-1193	Authorizes council-approved contracts to include year 2000 warranty and responsibilities (Special)
98-1194	Code readoption (Not codified)
98-1195	Approves grant from election commission (Special)
98-1196	Authorizes acquisition of property for utility easement (Special)
98-1197	Amends official street and alley acceptance and maintenance map (Special)
98-1198	Cancels undeveloped reduced site size residential PUD district (Special)
98-1199	Approves Nashville Public Library grant (Special)
98-1200	Amends official street and alley acceptance and maintenance map (Special)
98-1201	Rezone (Special)
98-1202	Rezone (Special)
98-1203	Rezone (Special)
98-1204	Rezone (Special)
98-1205	(Withdrawn)
98-1206	Rezone (Special)
98-1207	(Withdrawn)

Ordinance Number	Disposition
98-1208	(Failed)
98-1209	Approves emergency management agency grant (Special)
98-1210	Approves street, roadway and associated lighting facilities contract (Special)
Amdt. 1	Amends Ord. 98-1210 (Special)
98-1211	Approves sale of certain property (Special)
98-1212	Approves sale of certain property (Special)
98-1213	Authorizes participation with Hawkins Development Company for construction of project 97-WL-121 (Special)
98-1214	Authorizes agreement for Southern Woods development sewer improvements (Special)
98-1215	Authorizes acquisition of property for utility easement (Special)
98-1216	Authorizes acquisition of property for utility easement (Special)
98-1217	Authorizes acquisition of property for public project (Special)
98-1218	(Withdrawn)
98-1219	Adopts 1998-1999 through 2003-2004 capital improvements budget (Special)
Amdt. 1	Amends Ord. 98-1219 (Special)
Amdt. 2	Amends Ord. 98-1219 (Special)
Amdt. 3	Amends Ord. 98-1219 (Special)
Amdt. 4	Amends Ord. 98-1219 (Special)
Amdt. 5	Amends Ord. 98-1219 (Special)
Amdt. 6	Amends Ord. 98-1219 (Special)
Amdt. 7	Amends Ord. 98-1219 (Special)
Amdt. 8	Amends Ord. 98-1219 (Special)
Amdt. 9	Amends Ord. 98-1219 (Special)
Amdt. 10	Amends Ord. 98-1219 (Special)
Amdt. 11	Amends Ord. 98-1219 (Special)
Amdt. 12	Amends Ord. 98-1219 (Special)
Amdt. 13	Amends Ord. 98-1219 (Special)
Amdt. 14	Amends Ord. 98-1219 (Special)
Amdt. 15	Amends Ord. 98-1219 (Special)
Amdt. 16	Amends Ord. 98-1219 (Special)
Amdt. 17	Amends Ord. 98-1219 (Special)
98-1220	(Withdrawn)
98-1221	Rezone (Special)
98-1222	Rezone (Special)
98-1223	Rezone (Special)
98-1224	(Withdrawn)
98-1225	Rezone (Special)
98-1226	Rezone (Special)
98-1227	Amends zoning map (Special)
98-1228	Rezone (Special)
98-1229	Rezone (Special)
98-1230	Rezone (Special)
98-1231	Rezone (Special)
98-1232	Rezone (Special)
98-1233	Rezone (Special)
Amdt. 1	Amends Ord. 98-1233 (Special)
98-1234	Amends official street and alley acceptance and maintenance map (Special)
98-1235	Alley vacation (Special)
98-1236	Alley vacation (Special)
98-1237	1988-89 FY budget (Special)
Amdt. 1	Amends Ord. 98-1237 (Special)
Amdt. 2	Amends Ord. 98-1237 (Special)
98-1238	Tax levy (Special)
98-1239	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends Ord. 98-1239 (Special)
98-1240	Amends official street and alley acceptance and maintenance map (Special)
98-1241	Approves contract with Nashville Area Chamber of Commerce for promotion of tourism and convention business (Special)
Amdt. 1	Amends Ord. 98-1241 (Special)
98-1242	(Withdrawn)
98-1243	Rezone (Special)
98-1244	Rezone (Special)
98-1245	Rezone (Special)
Amdt. 1	Amends Ord. 98-1245 (Special)
98-1246	(Withdrawn)
98-1247	Rezone (Special)
98-1248	Cancels commercial PUD district at 1803 Lebanon Pike (Special)
98-1249	Rezone (Special)
98-1250	Rezone (Special)
98-1251	Rezone (Special)
98-1252	Cancels a portion of commercial PUD district (88-034G) and applying new PUD district (98P-003G) (Special)
98-1253	Rezone (Special)
98-1254	Rezone (Special)
98-1255	Rezone (Special)
Amdt. 1	Amends Ord. 98-1255 (Special)
98-1256	Rezone (Special)
Amdt. 1	Amends Ord. 98-1256 (Special)
98-1257	Rezone (Special)
98-1258	Rezone (Special)
98-1259	(Withdrawn)
98-1260	Rezone (Special)
98-1261	Rezone (Special)
98-1262	Rezone (Special)
98-1263	Rezone (Special)
98-1264	Cancels portion of commercial PUD district at southwest corner of Edmondson Pike and Old Hickory Boulevard (Special)
98-1265	Cancels portion of commercial PUD district at southwest corner of Edmondson Pike and Old Hickory Boulevard (Special)
98-1266	Rezone (Special)

Ordinance Number	Disposition
98-1267	Adds § 17.16.030B[C]; amends § 17.08.030, zoning (17.08, 17.16)
98-1268	Adds §§ 17.12.040(E)(24), [adds §§ 17.16.035 and 17.16.175] 17.20.030(G) and (H), 17.20.060(F)(7), 17.20.140(A)(4), 17.24.030E, 17.24.220C, 17.28.040C, Note 3 to 17.32.130, 17.40.120(G)(2)(k) and 17.40.275; amends §§ 17.04.060, 17.08.030, 17.12.040(E)(6), (19) and (20), 17.12.080A, 17.16.030, 17.16.040, 17.16.070, 17.16.080, 17.16.100, 17.16.110, 17.16.120, 17.16.150(G) and (H), 17.16.170, [17.16.070] 17.16.170(C)(5) and 17.16.170(D)(4), 17.16.170E, 17.16.180, 17.16.210, 17.16.220, 17.16.250, 17.16.280 [adds § 17.16.275], 17.16.330, 17.20.030, 17.20.030F, Table 17.20.070, 17.20.080A, 17.20.130, 17.20.130(A), (B) and (D), 17.20.130(E)(1) and (2), 17.20.140C, 17.20.140(D) and (E), 17.24.030A, 17.24.060C, 17.24.100(B), (D), (E) and (H), 17.24.150(A), (B) and (C), 17.24.160A, 17.24.160(A)(2), 17.24.200, 17.24.200C, 17.24.240D, 17.28.030(A)(2) [17.28.040(A)(2)], 17.32.100E, 17.40.080, 17.40.120(G)(1) and (2), 17.40.120(G)(2)(i) and (j), 17.40.170; repeals § 17.24.080(B)(3) and 17.32.070(C)(3); repeals and replaces §§ 17.12.030, 17.12.050(A)(3), 17.12.080(C) and (D), 17.24.190, 17.28.030(A)(1) [repeals and replaces 17.28.030(A)(1), adds new (A)(2), renumbers existing (A)(2) to be (A)(3)], 17.28.030(A)(2)(a), 17.28.040A, 17.36.070(B) and (C) [amends 17.36.070(B) and (C)], 17.40.290, Tables 17.12.020A, 17.12.020B, 17.12.020C, 17.20.130, 17.24.230, Figures 17.24.150-1 and 17.24.160 and protected and replacement tree schedules in § 17.24.100B, zoning (17.04, 17.08, 17.12, 17.16, 17.20, 17.24, 17.28. 17.32, 17.36, 17.40)
Amdt. 1	Adds §§ 17.16.090(E)(4), 17.16.250e, 17.28.101, 17.28.102, 17.28.103 and 17.40.530; amends §§ 17.04.060, 17.12.080(A) and (C)(1), 17.16.100, 17.16.170, 17.16.170E, 17.16.180, 17.16.190 [not amended], 17.16.330(4), 17.20.080A, 17.20.140E, 17.24.150A, 17.24.220C, 17.28.030(A)(2) [17.28.040(A)(2)], 17.28.040A; repeals §§ 17.12.050(A)(3), 17.24.100, 17.24.150C, 17.24.160A, 17.24.160(A)(2), 17.24.230, 17.24.240D and 17.28.040C; repeals and renumbers § 17.16.230 to be new section after § 17.16.180 and adds subsection 5 and repeals § 17.40.120(G)(1) and renumbers to be 17.40.120(G)(3) in Ord. 98-1268, zoning (17.04, 17.12, 17.16, 17.20, 17.24, 17.28, 17.40)
98-1269	Amends official street and alley acceptance and maintenance map (Special)
98-1270	Approves 98-99 FY central business improvement district budget (Special)
98-1271	Authorizes acquisition of property for utility easement (Special)
98-1272	Approves amendment to lease agreement with Martha O'Bryan Center (Special)
98-1273	Rezone (Special)
98-1274	Amends official street and alley acceptance and maintenance map (Special)
98-1275	Authorizes contract with state for reimbursement of funds expended for litter pickup using inmate labor (Special)
98-1276	Rezone (Special)
98-1277	Code readoption (Not codified)
98-1278	Approves transfer of certain property (Repealed by BL2002-1050)
Amdt. 1	Amends § 2 of Ord. 98-1278 (Special)
98-1279	Approves transfer of certain property (Special)
98-1280	Approves transfer of certain properties (Special)
98-1281	Approves grant of certain permanent easement (Special)
98-1282	Authorizes acceptance of certain donated property (Special)
98-1283	Approves redirection of income in the Capitol Mall urban development action grant (Special)
98-1284	Authorizes participation with CBM Enterprises for Project No. 97-SG-139 construction (Special)
98-1285	Authorizes McFarlin Woods L.L.C. to participate in Project No. 98-SG-13 (Special)

Ordinance Number	Disposition
98-1286	Authorizes McFarlin Woods L.L.C. to participate in Project No. 98-SG-13 (Special)
98-1287	(Withdrawn)
98-1288	Approves state grant for provision of custody prevention services (Special)
98-1289	Approves state grant for purchase of computer equipment (Special)
98-1290	Approves state grant contract for Stop Violence Against Women grant project (Special)
98-1291	Approves state grant contract for Stop Violence Against Women grant project (Special)
98-1292	Approves an Edward Byrne Memorial formula grant program contract with state (Special)
98-1293	Approves an Edward Byrne Memorial formula grant program contract with state (Special)
98-1294	Approves an Edward Byrne Memorial formula grant program contract with state (Special)
98-1295	Approves an Edward Byrne Memorial formula grant program contract with state (Special)
Amdt. 1	Amends Ord. 98-1295 (Special)
98-1296	(Failed)
98-1297	(Failed)
98-1298	Approves contract with Emergency Communications District for 1998-99 FY (Special)
98-1299	Authorizes acceptance of donation from Alan Erps (Special)
98-1300	Authorizes acquisition of property for utility easement (Special)
98-1301	Authorizes acceptance of proposal regarding Project No. 19045-2228-04 (Special)
98-1302	Approves state grant for the "Drug Docket: Justice and Therapy" program (Special)
98-1303	Approves state grant for various library services (Special)
98-1304	Approves state grant for provision of Title IV-D child support services (Special)
98-1305	Authorizes B.P. Oil Company to construct underground monitoring well (Special)
98-1306	Amends official street and alley acceptance and maintenance map (Special)
98-1307	Amends official street and alley acceptance and maintenance map (Special)
98-1308	Rezone (Special)
98-1309	Rezone (Special)
98-1310	Rezone (Special)
98-1311	Rezone (Special)
98-1312	Rezone (Special)
98-1313	Rezone (Special)
98-1314	Rezone (Special)
98-1315	(Withdrawn)
98-1316	Rezone (Special)
98-1317	Cancels PUD (Special)
98-1318	Rezone (Special)
98-1319	Rezone (Special)
98-1320	(Withdrawn)
98-1321	Amends §§ 17.04.060, Table 17.08.030, 17.16.110, 17.20.030, Table 17.20.070 and 17.20.090(A), zoning (17.04, 17.08, 17.20)
Amdt. 1	Amends portions of Chs. 17.04, 17.08 and deletes changes to Ch. 17.16, zoning (17.04, 17.08)
Amdt. 2	Amends portion of Ch. 17.08, zoning (17.08)
98-1322	(Withdrawn)
98-1323	Amends §§ 17.24.150(C), and 17.24.160(A)(2); repeals § 17.24.240(D) and reletters remaining subsections; repeals and replaces Table 17.24.230, zoning (17.24)
Amdt. 1	Amends Ordinance 98-1323 caption (Not codified)
Amdt. 2	Repeals and replaces § 3 of Ord. 98-1323 and § 17.24.240(D), zoning (17.24)
98-1324	Establishes assistance program for low-income elderly citizens for 1998-99 FY (Special)
98-1325	Amends § 7.08.090(A)(1), location restrictions for restaurants selling beer on-premise (7.08)
98-1326	Adds § 4.12.090(E), purchasing agent (4.12)
98-1327	(Withdrawn)
98-1328	Authorizes exchange of service areas with Nolensville/College Grove utility district (Special)
98-1329	Approves state grant for provision of disaster assistance (Special)
98-1330	Rezone (Special)
98-1331	Rezone (Special)
98-1332	Rezone (Special)
98-1333	Cancels PUD Parcel No. 186 (Special)
98-1334	Rezone (Special)
98-1335	Amends certain PUD (Special)
98-1336	Rezone (Special)
98-1337	Rezone (Special)
98-1338	Rezone (Special)
98-1339	Rezone (Special)
98-1340	(Withdrawn)
98-1341	Rezone (Special)
98-1342	Rezone (Special)
98-1343	Amends official zoning map (Special)
98-1344	Rezone (Special)
98-1345	Rezone (Special)
98-1346	Rezone (Special)

Ordinance Number	Disposition
Amdt. 1	Amends Ord. 98-1346 (Special)
98-1347	Rezone (Special)
98-1348	Amends certain PUD (Special)
Amdt. 1	Amends Ord. 98-1348 (Special)
98-1349	(Withdrawn)
98-1350	(Withdrawn)
98-1351	Rezone (Special)
98-1352	Adds § 13.24.230(C) and Ch. 12.58; amends §§ 12.68.090(A), portion of Ch. 12.04 and 13.24.230(A); repeals § 13.32.180, roller and in-line skates (12.04, 12.58, 12.68, 13.24)
98-1353	Adds § 2.164.050, contacting authority for the board of hospitals (2.164)
Amdt. 1	Amends § 1 of Ord. 98-1353, contacting authority for the board of hospitals (2.164)
98-1354	Approves state grant for hiring urban forestry staff (Special)
98-1355	Abandons easement (Special)
98-1356	Authorizes conveyance of property (Special)
98-1357	Approves state grant for Title IV-A child support services (Special)
Amdt. 1	Amends Ord. 98-1357 (Special)
98-1358	Approves state grant for Vine Hill Community Collaborative project (Special)
98-1359	Approves state grant for drug control and systems improvement contract (Special)
98-1360	Approves state grant for drug control and systems improvement contract (Special)
98-1361	Approves state grant for drug control and systems improvement contract (Special)
98-1362	Approves lease agreement with Steve and Elaine Minton for construction of emergency communication tower (Special)
98-1363	Approves lease agreement with South Central Communications for emergency communication tower site lease (Special)
98-1364	Authorizes water or sewer line agreement with the Nashville and Eastern Railroad Corporation (Special)
98-1365	Rezone (Special)
98-1366	Rezone (Special)
98-1367	Rezone (Special)
98-1368	Adds § 2.44.210, contracting to assign extra-duty police officers (2.44)
98-1369	Amends § 3.08.010, family medical leave services (3.08)
98-1370	(Withdrawn)
98-1371	Authorizes easement conveyance (Special)
98-1372	Authorizes payment to The Business Group for sewer line extension improvements (Special)
98-1373	Authorizes payment from Industrial Development Board for Project No. 98-WG-65 improvements (Special)
98-1374	Authorizes Gianikas Contractors to participate in Project 98-WG-64 (Special)
98-1375	Approves board of parks and recreation grant for eradication of noxious weeds (Special)
98-1376	Approves state grant for drug control and systems improvement contract (Special)
98-1377	Approves state grant for drug control and systems improvement contract (Special)
98-1378	Approves state grant for drug control and systems improvement contract (Special)
98-1379	Approves state grant for library services for children living in poverty (Special)
98-1380	Approves state grant for substance abuse treatment program for state offenders (Special)
98-1381	Amends § 10.18.010, prohibits smoking in the stadium bowl (10.18)
98-1382	(Withdrawn)
98-1383	Approves contract with Pennington Bend tourist development commission for tourism promotion (Special)
Amdt. 1	Adds § 2 to Ord. 98-1383 (Special)
98-1384	Authorizes agreement with state for enhancement of Andrew Jackson Aquifier (Special)
98-1385	Code readoption (Not codified)
98-1386	Amends § 4.32.060, surplus personal property (4.32)
98-1387	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends § 1 of Ord. 98-1387 (Special)
Amdt. 2	Amends § 1 of Ord. 98-1387 (Special)
98-1389	Repeals and replaces § 10.20.330; repeals § 10.20.260, solid waste collection (10.20)
98-1390	Transfer of certain properties (Special)
98-1391	Abandons sewer easement (Special)
98-1392	Acquisition of property for utility easement (Special)
98-1393	Authorizes water or sewer line agreement with CSX Transportation (Special)
98-1394	Accepts donation from Riverwood Neighborhood Alliance, Inc. (Special)
Amdt. 1	Amends Ord. 98-1394 (Special)
98-1395	Accepts computer donation from Saint Thomas Health Services (Special)
98-1396	Approves law enforcement block grant (Special)
Amdt. 1	Amends Ord. 98-1396 (Special)
98-1397	Approves grant from Bureau of Alcohol, Tobacco and Firearms (Special)

Ordinance Number	Disposition
98-1398	Approves drug control and systems improvement grant (Special)
98-1399	Approves victims of violent crimes grant (Special)
98-1400	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends Ord. 98-1400 (Special)
98-1401	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends Ord. 98-1401 (Special)
98-1402	Amends official street and alley acceptance and maintenance map (Special)
98-1403	Rezone (Special)
98-1404	Rezone (Special)
98-1405	(Withdrawn)
98-1406	Rezone (Special)
98-1407	Rezone (Special)
98-1408	Rezone (Special)
98-1409	Rezone (Special)
98-1410	(Withdrawn)
98-1411	Rezone (Special)
98-1412	Rezone (Special)
98-1413	Rezone (Special)
98-1414	Cancels PUD (Proposal 157-81-U) (Special)
98-1415	Rezone (Special)
98-1416	(Withdrawn)
98-1417	Rezone (Special)
98-1418	Amends PUD (Proposal 177-74-U) (Special)
98-1419	Rezone (Special)
Amdt. 1	Amends Ord. 98-1419 (Special)
98-1420	Rezone (Special)
98-1421	Adopts property identification maps (Special)
98-1422	Approves drug control and systems improvement grant (Special)
98-1423	Approves drug control and systems improvement grant (Special)
98-1424	Approves drug control and systems improvement grant (Special)
98-1425	Accepts donation of police department items from Service Merchandise Company (Special)
Amdt. 1	Amends Ord. 98-1425 (Special)
98-1426	Amends § 3.08.010, definition of earnings (3.08)
98-1427	Adds Ch. 15.34, residential sanitary sewerage pumping systems (15.34)
98-1428	Authorizes submittal of annual update to consolidated plan for housing and community development programs (Special)
98-1429	Authorizes exchange of equipment installation rights between metropolitan water and sewerage services and Powertel/Memphis Inc. (Special)
98-1430	Amends §§ 7.08.010 and 13.24.090(B)(4), alcohol provisions in certain parks (7.08, 13.24)
98-1431	Approves grant for collection and disposal of waste tires (Special)
98-1432	Approves grant for an automated collision database and analysis system project (Special)
98-1433	Approves drug control and systems improvement grant (Special)
98-1434	Accepts Project No. 19003-1181-44 proposal (Special)
98-1435	Approves lease agreement for construction of emergency communications tower (Special)
98-1436	Approves police-related office lease (Special)
98-1437	Acquisition of property for utility easements (Special)
98-1438	Authorizes participation by Williamson County parks and recreation with Nolensville Trunk Sewer Project No. 98-SG-13 (Special)
98-1439	Authorizes acceptance of monies and easements for interior sewer protection (Special)
98-1440	Approves sale of certain property (Special)
98-1441	Approves sale of certain property (Special)
98-1442	Amends official street and alley acceptance and maintenance map (Special)
98-1443	(Withdrawn)
98-1444	(Withdrawn)
98-1445	Adds §§ 10.64.015, 16.12.295, 16.20.345, 16.24.110(L), 16.24.265 and 16.28.260; amends §§ 16.08.014(B), 16.16.240(Q), (T), (W), (Y) and 16.24.010; amends and reletters portions of §§ 16.08.012, 16.12.130, 16.16.230, 16.16.240, 16.16.260 and 16.20.150; repeals and replaces §§ 2.20.080(B), 2.80.060, 2.80.080, 2.80.090, 2.80.110(A) and (D), 10.64.010, 16.04.180, 16.08.010(A) and (D), 16.08.014(H) and (P), 16.12.280, 16.16.190(B) and (D), 16.20.340, 16.24.120(G), 16.24.230 and 16.28.220; repeals § 16.24.140(A) and (B), building codes (2.20, 2.80, 10.64, 16.04, 16.08, 16.12, 16.16, 16.20, 16.28)
Amdt. 1	Amends Section 1, enactment clause; repeals and replaces Section 88, effective date (Not codified)

Ordinance Number	Disposition
98-1446	(Withdrawn)
98-1447	Adds § 12.20.020(C); amends § 1.01.030(B); repeals and replaces §§ 12.12.090(F), 12.12.110(E), 12.20.010(B), 12.20.070(B), 12.24.040(D). 12.68.170(B) and 12.84.030(A); repeals §§ 12.84.020(4), (6), (31), (35) and (72), vehicles and traffic (1.01, 12.12, 12.20, 12.24, 12.68, 12.84)
98-1448	Approves lease agreement with metropolitan development and housing agency (Special)
98-1449	Approves lease agreement with Rock City Realty Company (Special)
Amdt. 1	Amends pgs. 8 and 9 of lease agreement (Special)
98-1450	Approves drug control and systems improvement grant (Special)
98-1451	State corrections program grant (Special)
98-1452	Approves sale of certain property (Special)
98-1453	Accepts donation of certain property (Special)
98-1454	Acquisition of property for sewer line (Special)
98-1455	Acquisition of property for utility easements (Special)
98-1456	Amends official street and alley acceptance and maintenance map (Special)
98-1457	Rezone (Special)
98-1458	Rezone (Special)
Amdt. 1	Amends Ord. 98-1458 (Special)
Amdt. 2	Amends Ord. 98-1458 (Special)
98-1459	Rezone (Special)
98-1460	Amends official street and alley acceptance and maintenance map (Special)
98-1461	Accepts donation of K90 talisman thermal imager camera for fire department (Special)
98-1462	Authorizes certain encroachment (Special)
98-1463	Rezone (Special)
98-1464	Rezone (Special)
98-1465	Rezone (Special)
98-1466	Rezone (Special)
98-1467	Rezone (Special)
98-1468	Rezone (Special)
Amdt. 1	Amends Ord. 98-1468 (Special)
98-1469	Rezone (Special)
Amdt. 1	Amends Ord. 98-1469 (Special)
98-1470	Rezone (Special)
98-1471	(Withdrawn)
98-1472	Rezone (Special)
98-1473	Adopts official street and alley acceptance and maintenance map (Special)
98-1474	Repeals and replaces §§ 6.12.060 and 6.12.070, dancehall and alcohol provisions (6.12)
98-1475	Authorizes conveyance of certain properties (Special)
98-1476	Accepts grant for online education resources and support for law enforcement families (Special)
98-1477	Accepts grant for implementation of an acquisitions program for artifacts and works of art (Special)
98-1478	Authorizes transfer of certain service areas (Special)
98-1479	(Withdrawn)
98-1480	Rezone (Special)
98-1481	Rezone (Special)
98-1482	(Withdrawn)
98-1483	Rezone (Special)
98-1484	Rezone (Special)
98-1485	(Withdrawn)
98-1486	(Withdrawn)
98-1487	Rezone (Special)
98-1488	Rezone (Special)
98-1489	(Withdrawn)
98-1490	(Withdrawn)
98-1491	Applies provisions of PUD proposal 98P-007U to certain property (Special)
98-1492	Rezone (Special)
Amdt. 1	Amends Ord. 98-1492 (Special)
Amdt. 2	Amends Ord. 98-1492 (Special)
98-1493	Approves memorandum of understanding with metropolitan development and housing agency for establishment of task force to service MDHA properties (Special)
98-1494	Approves transfer of certain property (Special)
98-1495	Accepts two grants for the Urban and Community Forestry Grant Assistance Program (Special)
98-1496	Approves grant for National Arson Initiative Pilot City Program (Special)
98-1497	Amends § 1.01.030(B); repeals and replaces § 1.01.030(A); repeals § 16.68.180(B) [12.68.180(B)], penalty provisions (1.01, 12.68)
99-1498	Amends § 15.48.090(A) and (B), water and sewers (15.48)
99-1499	Approves joint funding agreement with the United States Department of the Interior Geological Survey (Special)
99-1500	Approves easement abandonment, proposal 98M-132U (Special)
99-1501	Approves easement abandonment, proposal 98M-133U (Special)

Ordinance Number	Disposition
99-1502	Repeals and replaces §§ and Tables 15.32.020 and 15.44.020, water and sewer rates (15.32, 15.44)
99-1503	Adds § 6.54.080(A)(4); amends §§ 6.54.010(D), (G), (L), (M), (W), (X), 6.54.030(A), (E), (F), 6.54.040(A)(1) and (4), (A)(5)(a)—(g), (A)(6), (B)(1)—(3), (C)(4), (C)(9) and (10), (D)(1), (D)(1)(a), (D)(1)(d) and (e), (D)(2)(d), (E)(1)(c) and (d), 6.54.050(A)(1), (A)(1)(a) and (b), (A)(1)(b)(i), (v), (A)(1)(c), (A)(2), (B)(1)(b) and (c), (B)(2), (B)(2)(c), (B)(3), (B)(3)(a)—(c)[(d)], 6.54.060(A) and (B), 6.54.070(A)(2), (A)(4)(b)—(g), (B), (C)(1), (4), (5), (7), (D)(3) and (4), 6.54.080(A)(2), (A)(2)(b), (A)(3), (A)(3)(a) and (c), 6.54.090(C), 6.54.100(B), 6.54.110(F) and (K), 6.54.120(B), 6.54.130(A)—(D), 6.54.140(A)—(C), 6.54.160(A)(2) and (3); amends and renumbers § 6.54.050(B)(4)—(5) to be (B)(5)—(6); combines § 6.54.130(E) and (F) to be (E) and amends and renumbers (F)—(K) to be (F)—(J); renumbers § 6.54.040(C)(1) to be (C)(1)—(3); repeals § 6.54.040(B)(4) and renumbers (B)(5)—(10) to be (B)(4)—(9) and repeals and renumbers § 6.54.040(C)(3) to be (C)(5); repeals and replaces § 6.54.150, sexually oriented businesses (6.54)
Amdt. 1	Amends §§ 6.54.010, 6.54.020(F), 6.54.040(A)(5)(e), (C)(7), 6.54.070, (A)(4)(g), (C)(1), (5), (D), 6.54.080(A)(3)(a), 6.54.110, 6.54.130(D), 6.54.150(A)(1), (C)(1), (E)(3), sexually oriented businesses (6.54)
99-1504	(Withdrawn)
99-1505	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends Ord. 99-1505 (Special)
99-1506	Approves contract with Vanderbilt University School of Nursing (Special)
99-1507	Authorizes conveyance of certain property (Special)
99-1508	Approves assignment of fiber optic telecommunications system to NextLink Tennessee, Inc. (Special)
99-1509	Authorizes privately funded construction at the Sportsplex (Special)
99-1510	Code readoption (Not codified)
99-1511	Authorizes signage encroachment by Real Entertainment Ventures, Inc. (Special)
99-1512	Amends official street and alley acceptance and maintenance map (Special)
99-1513	Amends official street and alley acceptance and maintenance map (Special)
99-1514	Rezone (Special)
99-1515	Rezone (Special)
99-1516	Rezone (Special)
99-1517	Amends official street and alley acceptance and maintenance map (Special)
99-1518	Authorizes acquisition of property, project 97-R-13 (Special)
99-1519	Rezone (Special)
99-1520	Rezone (Special)
99-1521	Rezone (Special)
99-1522	Amends PUD, proposal 96P-023G (Special)
99-1523	(Withdrawn)
99-1524	(Defeated)
99-1525	Rezone (Special)
99-1526	Rezone (Special)
99-1527	(Withdrawn)
99-1528	Adds § 4.04.020(C)(5), procurements by the hospital authority (4.04)
99-1529	Approves amendment to Section 218 social security coverage agreement (Special)
99-1530	Adds § 2.44.030(C), chief of police contracts (2.44)
99-1531	Amends § 15.32.190(C), water billing (15.32)
99-1532	Authorizes participation by Fox Ridge Homes in the construction of project 98-SG-181 (Special)
99-1533	Authorizes participation by Development Ventures, LLC in the construction of project 98-SG-181 (Special)
99-1534	Rezone (Special)
99-1535	Amends PUD, proposal no. 88P-069U (Special)
99-1536	(Withdrawn)
99-1537	Rezone (Special)
99-1538	Rezone (Special)
99-1539	Applies provisions of PUD proposal no. 99P-001U to certain property (Special)
99-1540	Rezone (Special)
99-1541	Rezone (Special)
99-1542	(Withdrawn)
99-1543	Amends certain PUD, proposal no. 95P-017G (Special)
99-1544	Rezone (Special)
Amdt. 1	Amends Ord. 99-1544 (Special)
99-1545	(Withdrawn)
99-1546	Amends official street and alley acceptance and maintenance map (Special)
99-1547	Amends official street and alley acceptance and maintenance map (Special)
99-1548	Amends official street and alley acceptance and maintenance map (Special)

Ordinance Number	Disposition
99-1549	Cancels portion of second avenue north historic preservation district (Special)
99-1550	Approves lease agreement by and between metropolitan government (Special)
99-1551	Approves memorandum of understanding between metropolitan police department and veterans affairs medical center (Special)
99-1552	Rezone (Special)
99-1553	(Withdrawn)
99-1554	Amends official street and alley acceptance and maintenance map (Special)
99-1555	Amends official street and alley acceptance and maintenance map (Special)
99-1556	Amends official street and alley acceptance and maintenance map (Special)
99-1557	Adds Art. VIII to Ch. 2.56, general sessions court safety center; repeals § 2.56.310 (2.56)
99-1558	Approves lease agreement with Martha O' Bryan Center to benefit metropolitan social services commission (Special)
99-1559	Approves lease agreement with Tennessee Board of Regents for construction of television studio (Special)
99-1560	Authorizes agreement with CSX Transportation, Inc. (Special)
99-1561	Authorizes mayor to execute equipment installation rights exchange agreement with Sprint Spectrum L.P. (Special)
99-1562	Authorizes interlocal agreement with Williamson County granting metro access to county's graphical information system (Special)
99-1563	Authorizes acceptance of utility relocation contract (Special)
99-1564	Authorizes acceptance of utility relocation contract (Special)
99-1565	Authorizes acceptance of utility relocation contract (Special)
99-1566	Authorizes acquisition of property, project no. 98-R-6 (Special)
99-1567	Approves sale of certain property (Special)
99-1568	Approves sale of certain property (Special)
99-1569	Authorizes easement for use and benefit of the Greenway Commission in conjunction with Shelby Bottoms Greenway (Special)
99-1570	Approves grant of permanent easement on certain property owned by the metropolitan government (tax map 70-15, parcel 43) and used for the Looby Center (Special)
99-1571	Approves certain lease agreement (Special)
99-1572	(Withdrawn)
99-1573	Cancels PUD parcel (Special)
99-1574	(Withdrawn)
99-1575	Amends § 1 of Ord. 98-1191, street vendors (13.08)
99-1576	(Withdrawn)
99-1577	Approves intergovernmental agreement with hospital authority (Special)
Amdt. 1	Amends Ord. 99-1577 (Special)
99-1578	Approves school-based partnership grant from U.S. Department of Justice (Special)
99-1579	Approves reimbursement of overtime funds agreement with ATF (Special)
99-1580	(Withdrawn)
99-1581	Accepts certain water and sanitary sewer construction (Special)
99-1582	Approves transfer of certain property (Special)
99-1583	Authorizes participation with project no. 97-SL-153A (Special)
99-1584	Accepts proposal relating to project no. IM-65-03(100)87 (Special)
99-1585	(Withdrawn)
99-1586	Code readoption (Not codified)
99-1587	Approves lease agreement with metro development and housing agency (Special)
99-1588	Approves grant contract with Country Music Foundation, Inc. (Special)
99-1589	(Withdrawn)
Amdt. 1	Amends Ord. 99-1589 (Special)
99-1590	Amends §§ 12.40.040(A)(2)(j), 12.42.010, 12.42.020, 12.42.030, 12.42.040, 12.42.050, 12.42.060, 12.42.070, 12.42.080 and 12.42.090, residential permit parking program (12.40, 12.42)
Amdt. 1	Amends § 4 of Ord. 99-1590 by changing reference from twenty-five percent to seventy-five percent (12.42)
99-1591	Adds § 2.62.010(B)(6), mayor's office of film and special events (2.62)
99-1592	Accepts assignment of lease to benefit the mayor's office of economic development (Special)
99-1593	Approves Cops More 98 grant (Special)
99-1594	(Withdrawn)
99-1595	(Withdrawn)
99-1596	Accepts funds for certain residential substance abuse treatment grant (Special)
99-1597	Authorizes participation with project no. 98-SL-192 (Special)
99-1598	Authorizes participation with project no. 98-WL-158 (Special)
99-1599	Authorizes participation with project no. 96-SL-49 (Special)
99-1600	Authorizes participation with project no. 98-WL-164 (Special)

Ordinance Number	Disposition
99-1601	Accepts certain water and sanitary sewer construction (Special)
99-1602	Transfer of certain property (Special)
99-1603	Rezone (Special)
99-1604	Rezone (Special)
99-1605	Rezone (Special)
99-1606	Rezone (Special)
99-1607	Rezone (Special)
99-1608	Rezone (Special)
99-1609	Rezone (Special)
99-1610	Applies neighborhood conservation overlay district on certain properties (Special)
99-1611	Rezone (Special)
99-1612	Applies provisions of urban design overlay district to various parcels (Special)
99-1613	(Withdrawn)
99-1614	Amends § 17.20.040, zoning (17.20)
Amdt. 1	Amends caption of Ord. 99-1614 (Not codified)
Amdt. 2	Amends first italicized sentence of § 1 of Ord. 9-1614 (17.20)
99-1615	Adds subsection to § 17.32.030(C); amends § 17.12.020; repeals and replaces § 17.36.320, zoning (17.12, 17.32, 17.36)
99-1616	Adds §§ 17.04.050(H) and reletters remaining subsections and 17.16.030(D); amends §§ 17.08.030 and 17.16.160(A) [17.16.160(A)(4)], zoning (17.04, 17.08, 17.16)
99-1617	Amends Table 17.12.020(B), zoning (17.12)
Amdt. 1	Amends caption of Ord. 99-1617; repeals and replaces Exh. A of Ord. 99-1617 (17.12)
99-1618	Amends official street and alley acceptance and maintenance map (Special)
99-1619	(Withdrawn)
99-1620	Amends official street and alley acceptance and maintenance map (Special)
99-1621	Cancels certain PUD (Special)
99-1622	Rezone (Special)
99-1623	Cancels certain PUD (Special)
99-1624	Rezone (Special)
99-1625	Rezone (Special)
99-1626	Rezone (Special)
99-1627	(Withdrawn)
99-1628	Rezone (Special)
99-1629	Rezone (Special)
99-1630	Rezone (Special)
99-1631	Cancels certain PUD (Special)
99-1632	Rezone (Special)
99-1633	(Withdrawn)
99-1634	Rezone (Special)
99-1635	Rezone (Special)
99-1636	Cancels certain PUD (Special)
99-1637	Applies provisions of PUD proposal no. 99P-002U to certain property (Special)
99-1638	Amends certain PUD (Special)
99-1639	Rezone (Special)
99-1640	Amends certain PUD (Special)
99-1641	Amends Table 17.12.020(C), zoning (17.12)
Amdt. 1	Amends caption of Ord. 99-1641 (Not codified)
99-1642	Amends §§ 17.04.060, Table 17.08.030 and 17.16.030, zoning (17.04, 17.08, 17.16)
Amdt. 1	Amends caption of Ord. 99-1642 (Not codified)
99-1643	Amends §§ 17.20.130(B), Table 17.20.130 and 17.24.060(D), zoning (17.20, 17.24)
Amdt. 1	Amends caption of Ord. 99-1643 (Not codified)
99-1644	Adds § 17.16.120(C); amends §§ 17.04.060, 17.08.030 and 17.20.030, zoning (17.04, 17.08, 17.16, 17.20)
Amdt. 1	Amends caption of Ord. 99-1644 and §§ 17.08.030 and 17.20.030; repeals and replaces amendment to § 17.16.120, zoning (17.08, 17.16, 17.20)
99-1645	Amends official street and alley acceptance and maintenance map (Special)
99-1646	Authorizes proposal 99M-042U, fiber-optic cable installation (Special)
99-1647	Approves Amendment No. 1 to East Bank redevelopment plan (Special)
99-1648	(Withdrawn)
99-1649	Repeals and replaces § 11.12.080(A), discharge of firearms (11.12)
Amdt. 1	Adds sentence to § 11.12.080(A), discharge of firearms (11.12)
99-1650	(Withdrawn)
99-1651	Approves streambank stabilization agreement (Special)
99-1652	(Withdrawn)
99-1653	(Withdrawn)
99-1654	Amends official street and alley acceptance and maintenance map (Special)
99-1655	Rezone (Special)
99-1656	Rezone (Special)
99-1657	Repeals and replaces § 1 of Ord. 93-685, traffic violations (Not codified)
99-1658	Adds Art. IX to Ch. 2.56, pre-trial release program (Repealed by BL2003-100)
99-1659	Rezone (Special)
99-1660	Rezone (Special)
99-1661	(Withdrawn)
99-1662	Acquisition of certain property (Special)
99-1663	Authorizes conveyance of certain property (Special)

Ordinance Number	Disposition
99-1664	Accepts donation of trailer for police department (Special)
99-1665	Approves technological improvement grant (Special)
99-1666	Approves transfer of certain property (Special)
99-1667	Approves contract with chamber of commerce (Special)
99-1668	Amends § 10.20.240, tip fees for solid waste (10.20)
99-1669	Repeals and replaces § 8.04.140(A), impoundment of unlicensed dogs (Repealed by 99-1796)
99-1670	Approves project HPP-9312(28) grant (Special)
99-1671	Approves grant for construction to the Mill Creek greenway (Special)
99-1672	Approves agreement with Tritel Communications, Inc. (Special)
99-1673	Authorizes participation in project 98-WL-149 (Special)
99-1674	Amends official street and alley acceptance and maintenance map (Special)
99-1675	Adopts 1999-2000 through 2004-2005 capital improvements budget (Special)
Amdt. 1	Amends Ord. 99-1675 (Special)
Amdt. 2	Amends Ord. 99-1675 (Special)
Amdt. 3	Amends Ord. 99-1675 (Special)
Amdt. 4	Amends Ord. 99-1675 (Special)
Amdt. 5	Amends Ord. 99-1675 (Special)
Amdt. 6	Amends Ord. 99-1675 (Special)
Amdt. 7	Amends Ord. 99-1675 (Special)
Amdt. 8	Amends Ord. 99-1675 (Special)
Amdt. 9	Amends Ord. 99-1675 (Special)
Amdt. 10	Amends Ord. 99-1675 (Special)
Amdt. 11	Amends Ord. 99-1675 (Special)
Amdt. 12	Amends Ord. 99-1675 (Special)
Amdt. 13	Amends Ord. 99-1675 (Special)
Amdt. 14	Amends Ord. 99-1675 (Special)
Amdt. 15	Amends Ord. 99-1675 (Special)
99-1676	FY 2000 budget (Special)
99-1677	Tax levy (Special)
99-1678	Amends §§ 5.12.020; repeals and replaces § 5.12.060(A)
Amdt. 1	Amends § 2 to delete reference to "20002" and replace with "2002" (5.12)
99-1679	Authorizes payment system for Dell Computer Corporation project (Special)
99-1680	Add chapter to Title 2, economic and community development incentive program (2.210)
99-1681	Amends official street and alley acceptance and maintenance map and conveys certain real estate (Special)
99-1682	Approves Watkins Institute lease agreement (Special)
99-1683	Approves Ewing Lane Partnership lease agreement (Special)
99-1684	Approves lease agreement with Norman W. Ginsberg (Special)
99-1685	Approves lease agreement for new downtown library (Special)
99-1686	Approves agreement with city of Mt. Juliet concerning sewage transportation and treatment (Special)
99-1687	Acquisition of property for utility easement (Special)
99-1688	Abandons portion of sewer easement (Special)
99-1689	Accepts historical commission grant (Special)
99-1690	Approves grant from emergency management agency (Special)
99-1691	Approves grant from commission on national and community service (Special)
99-1692	Approves contract for issuance of Tennessee certificates of title (Special)
99-1693	Condemnation and acquisition of property (Special)
99-1694	Condemnation and acquisition of property (Special)
99-1695	Condemnation and acquisition of property (Special)
99-1696	Amends official street and alley acceptance and maintenance map (Special)
99-1697	Rezone (Special)
99-1698	Applies historic landmark overlay district to certain properties (Special)
99-1699	(Withdrawn)
99-1700	Rezone (Special)
99-1701	Cancels certain PUD (Special)
99-1702	(Withdrawn)
99-1703	(Withdrawn)
99-1704	Amends official street and alley acceptance and maintenance map (Special)
99-1705	Amends official street and alley acceptance and maintenance map (Special)
99-1706	Amends official street and alley acceptance and maintenance map (Special)
99-1707	Rezone (Special)
99-1708	Rezone (Special)
99-1709	Rezone (Special)
99-1710	(Withdrawn)
99-1711	Rezone (Special)
99-1712	Rezone (Special)
99-1713	Rezone (Special)
99-1714	Applies neighborhood conservation overlay district to certain properties (Special)

Ordinance Number	Disposition
99-1715	Rezone (Special)
Amdt. 1	Amends Ord. 99-1715 (Special)
99-1716	(Failed)
99-1717	(Withdrawn)
99-1718	(Withdrawn)
99-1719	Rezone (Special)
99-1720	Rezone (Special)
99-1721	Rezone (Special)
99-1722	Applies PUD to certain properties (Special)
Amdt. 1	Amends Ord. 99-1722 (Special)
99-1723	Rezone (Special)
99-1724	Rezone (Special)
99-1725	Rezone (Special)
99-1726	Amends certain PUD (Special)
99-1727	(Withdrawn)
99-1728	Rezone (Special)
99-1729	Rezone (Special)
99-1730	(Failed)
99-1731	(Withdrawn)
99-1732	(Withdrawn)
99-1733	(Withdrawn)
99-1734	(Withdrawn)
99-1735	(Withdrawn)
99-1736	Rezone (Special)
99-1737	Rezone (Special)
99-1738	Rezone (Special)
Amdt.1	Amends Ord. 99-1738 (Special)
99-1739	(Withdrawn)
99-1740	(Failed)
99-1741	Rezone (Special)
99-1742	Rezone (Special)
99-1743	Amends certain PUD (Special)
99-1744	Rezone (Special)
99-1745	Rezone (Special)
99-1746	(Withdrawn)
99-1747	(Failed)
99-1748	Rezone (Special)
Amdt. 1	Amends Ord. 99-1748 (Special)
99-1749	Rezone (Special)
99-1750	(Failed)
99-1751	(Failed)
99-1752	Cancels certain PUD (Special)
99-1753	(Withdrawn)
99-1754	Amends §§ 17.04.060, 17.08.030, 17.12.060 and 17.24.030(C), zoning (17.04, 17.12, 17.24)
Amdt. 1	Deletes § 4 and renumbers remaining ordinance sections (Codified)
99-1755	(Withdrawn)
99-1756	Adds (A) to § 17.40.040, reletters (A), (B) and (C) to be (1), (2) and (3), and adds new subsection (B), zoning (17.40)
99-1757	Amends official street and alley acceptance and maintenance map (Special)
99-1758	Abandons certain street (Special)
99-1759	Amends official street and alley acceptance and maintenance map (Special)
99-1760	Approves grant from department of agriculture (Special)
99-1761	Approves Amendment No. 1 to the arts center redevelopment plan (Special)
99-1762	Approves Amendment No. 1 to Phillips-Jackson street redevelopment plan (Special)
Amdt. 1	Amends Ord. 99-1762 (Special)
99-1763	Approves central state redevelopment plan (Special)
99-1764	Approves memorandum of understanding with Averitt Properties, Inc. (Special)
99-1765	Approves lease agreement with state for operation of medical examiner's office (Special)
Amdt. 1	Amends Ord. 99-1765 (Special)
99-1766	(Withdrawn)
99-1767	Acquisition of property for utility easement (Special)
99-1768	Authorizes participation in project no. 99-SG-23 by Horace Bass (Special)
Amdt. 1	Amends Ord. 99-1768 (Special)
99-1769	Acquisition of property for utility easement (Special)
99-1770	Acquisition of property for interchange modifications (Special)
99-1771	Acquisition of property for Metro Center Levee Project (Special)
99-1772	Acquisition of property for intersection improvement (Special)
99-1773	Approves residential substance abuse treatment program grant (Special)
99-1774	Approves urban and community forestry grant assistance program grant (Special)
99-1775	Amends § 11.12.080(A), definition of nighttime (11.12)
99-1776	Adds §§ 8.12.030—8.12.060; amends § 1.01.030(B); repeals §§ 8.20.140, 8.20.150 and 8.20.160, cruelty to animals (1.01, 8.12)
Amdt. 1	Amends § 2 of Ord. 99-1776 (8.12)
99-1777	Adds § 2.28.111; amends § 12.32.070, emergency vehicles (2.28, 12.32)
Amdt. 1	Adds language to § 3 and renumbers § 3 to be § 4 (Not codified)
99-1778	Approves transfer of certain property (Special)
99-1779	Amends official street and alley acceptance and maintenance map (Special)
99-1780	Authorizes entrance into Utility Contract No. 5423 (Special)

Ordinance Number	Disposition
99-1781	Authorizes entrance into Utility Contract No. 5424 (Special)
99-1782	Authorizes entrance into Utility Contract No. 5425 (Special)
99-1783	Abandons portion of sewer easement (Special)
99-1784	Abandons water and sewer easement (Special)
99-1785	Authorizes participation by Copperstone Development in projects 98-SL-192 and 97-SG-84 (Special)
99-1786	Amends official street and alley acceptance and maintenance map (Special)
99-1787	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends Ord. 99-1787 (Special)
99-1788	Amends official street and alley acceptance and maintenance map (Special)
99-1789	(Failed)
99-1790	Amends official street and alley acceptance and maintenance map (Special)
99-1791	(Withdrawn)
99-1792	(Withdrawn)
99-1793	Approves loan of emergency preparedness equipment (Special)
99-1794	Adds § 7.08.030(E) and (F), and certain sections to Ch. 7.08, Arts. I and II; amends §§ 7.08.010, 7.08.170, 7.20.030 and certain provisions to Chs. 7.04, 7.08 and 7.20; repeals and replaces §§ 7.04.040(C), 7.08.040, 7.08.050, 7.08.060, 7.08.160 and 7.08.240; repeals §§ 7.08.110—7.08.130 and 7.08.140(B) and renumbers remaining sections in both, and 7.20.010, sale of beer (7.04, 7.08, 7.20)
Amdt. 1	Adds § 17 and renumbers existing § 17 to be § 18; amends § 7.08.190 (7.08)
99-1795	Adds § 6.64.110(A)(21)(b); renumbers § 6.64.110(A)(21) to be 6.64.110(A)(21)(a), charitable solicitations board (6.64)
99-1796	Repeals and replaces § 8.04.140, disposition of unlicensed dogs (8.04)
Amdt. 1	Amends § 8.04.140(A); repeals and replaces § 8.04.140(C), dogs (8.04)
Amdt. 2	Deletes provisions of § 8.04.140(A)(1) and renumbers remaining provisions, dogs (8.04)
99-1797	Approves Edward Byrne memorial formula grant (Special)
99-1798	Approves fast track initiative grant (Special)
99-1799	Approves mental health jail diversion project grant (Special)
99-1800	Approves Telinet interlibrary loan program grant (Special)
99-1801	Approves Stop the Violence Against Women project grant (Special)
99-1802	Approves contract with Siemens Buildings Technologies, Inc. (Special)
Amdt. 1	Amends Ord. 99-1802 (Special)
99-1803	Approves Cumberland River Corridor agreement (Special)
99-1804	Adds § 4.12.095 [4.12.093], intergovernmental cooperative purchasing (4.12)
99-1805	Ratifies Tennessee Code Annotated § 39-11-701 et seq., and authorizes receipt and distribution of funds derived from property forfeitures under that section (Not codified)
99-1806	Authorizes planning commission to administratively correct zoning maps (Not codified)
99-1807	(Withdrawn)
99-1808	Repeals and replaces § 8.04.110(D), penalties for allowing dogs to run at large (8.04)
99-1809	Transfers positions and personnel assigned to health services certification division of DSS to metro general hospital (Not codified)
99-1810	Approves transfer of control of certain CATV franchise (Special)
99-1811	Approves transfer and assignment of certain CATV franchise; repeals Ord. 86-1767 (Special)
99-1812	Approves transfer and assignment of certain CATV franchise; repeals Ord. 86-1359 (Special)
Amdt. 1	Amends Ord. 99-1812 (Special)
99-1813	Acquisition of property for roadway stabilization (Special)
99-1814	Adds §§ 6.54.030(G) and paragraph to 6.54.040(A), 6.54.040(E)(1)(f), 6.54.050(A)(3), 6.54.060(C), 6.54.070(D)(1)(f), 6.54.080(A)(5), new § after 6.54.130(D) and renumbering following sections and three new subsections to 6.54.140; amends §§ 6.54.010, 6.54.010(O), (X), (Y) and (Y)(3), 6.54.020(C), 6.54.040(A)(1), (B)(1), (C)(1), (C)(2), (C)(7), (C)(9), (C)(11), (D)(1), (D)(1)(a) and (e), (D)(2), (D)(2)(a) and (D)(3), 6.54.060(B), 6.54.070(A)(2)(a)—(c), 6.54.070(B), 6.54.140(C) and 6.54.160(B); repeals and replaces §§ 6.54.020(D)(2), 6.54.030(B), 6.54.040(A)(4), (A)(5)(d), (f) and (k), (A)(6), (B)(2) and (C)(3), 6.54.050(B)(6), 6.54.070(A)(4)(e) and (h), (C)(1) and (E)(3); repeals § 6.54.050(A)(1)(c), sexually oriented businesses (6.54)

Ordinance Number	Disposition
Amdt. 1	Deletes § 7 and renumbering following sections (Not codified)
99-1815	Adds §§ 12.16.020(C), 12.60.060(D)—(F), 12.60.100(C), 12.60.135 and 12.60.165; amends §§ 12.16.110, 12.60.030, 12.60.040, 12.60.050, 12.60.060, 12.60.070, 12.60.100, 12.60.110 and 12.60.120; repeals and replaces §§ 12.04.025 and 12.60.140; repeals § 12.60.090, bicycles on sidewalks (12.04, 12.16, 12.60)
Amdt. 1	Deletes amending language in paragraph B of § 1, bicycles (12.60)
99-1816	Authorizes reimbursement of funds expended for litter pickup using inmate labor contract (Special)
99-1817	Approves victims of crime act grant (Special)
99-1818	Approves grant for drug control and systems improvement program (Special)
99-1819	Approves grant for development of a medical response system in the event of terrorist incidents (Special)
99-1820	Accepts Stop the Violence Against Women grant (Special)
99-1821	Approves computer grant (Special)
99-1822	Code readoption (Not codified)
99-1823	Abandons portion of easements retained by Ord. 96-157 (Special)
Amdt. 1	Amends Ord. 99-1823 (Special)
99-1824	Amends official street and alley acceptance and maintenance map (Special)
99-1825	(Failed)
99-1826	Amends official street and alley acceptance and maintenance map (Special)
99-1827	Approves sale of certain property (Special)
99-1828	(Withdrawn)
99-1829	Amends Contract No. 687 (Special)
99-1830	Abandons certain sewer easement (Special)
99-1831	Authorizes Interstate FiberNet, Inc. to construct fiber optic cable (Special)
99-1832	Authorizes Digital Teleport, Inc. to construct fiber optic cable (Special)
BL99-1	Repeals and replaces [adds] §§ 11.28.200—11.28.280, juvenile curfew (11.28)
BL99-2	(Withdrawn)
BL99-3	Adopts property identification maps for tax assessment purposes (Special)
BL99-4	Accepts CNA Life donation (Special)
Amdt. 1	Amends Ord. BL99-4 (Special)
BL99-5	Amends contract with Vanderbilt University for an exposure control consultant (Special)
BL99-6	Approves affiliation agreement with Volunteer State Community College (Special)
BL99-7	Approves State Commission on Children and Youth grant agreement (Special)
BL99-8	(Withdrawn)
BL99-9	Grants permanent easement (Special)
BL99-10	Amends official street and alley acceptance and maintenance map (Special)
BL99-11	Authorizes Vanderbilt University to construct chiller water lines (Special)
BL99-12	(Defeated)
BL99-13	(Withdrawn)
BL99-14	(Withdrawn)
BL99-15	Rezone (Special)
Amdt. 1	Amends Ord. BL99-15 (Special)
BL99-16	Rezone (Special)
BL99-17	Rezone (Special)
BL99-18	Rezone (Special)
BL99-19	Rezone (Special)
BL99-20	Rezone (Special)
BL99-21	Rezone (Special)
BL99-22	Rezone (Special)
BL99-23	(Withdrawn)
BL99-24	(Defeated)
BL99-25	Rezone (Special)
BL99-26	Amends PUD (Special)
BL99-27	Rezone (Special)
BL99-28	Rezone (Special)
BL99-29	Rezone (Special)
BL99-30	Rezone (Special)
BL99-31	Rezone (Special)
BL99-32	Rezone (Special)
BL99-33	(Withdrawn)
BL99-34	Rezone (Special)
BL99-35	(Withdrawn)
BL99-36	Rezone (Special)
BL99-37	Rezone (Special)
BL99-38	(Withdrawn)
BL99-39	Rezone (Special)
BL99-40	(Withdrawn)
BL99-41	Rezone (Special)
BL99-42	Rezone (Special)
BL99-43	Rezone (Special)
BL99-44	Rezone (Special)
BL99-45	Cancels developed apartment complex in certain PUD (Special)
BL99-46	Rezone (Special)
BL99-47	Rezone (Special)
BL99-48	(Withdrawn)
BL99-49	Rezone (Special)
BL99-50	Establishes low-income elderly assistance program (Not codified)
BL99-51	Adds § 1.16.080, fee for inmate's personal items (1.16)
BL99-52	Approves drug court single enhancement initiative grant (Special)

Ordinance Number	Disposition
BL99-53	Approves grant for Spanish interpreter (Special)
BL99-54	Approves juvenile court case support services grant (Special)
BL99-55	Approves juvenile court custody prevention services grant (Special)
BL99-56	Authorizes Utility Contract No. 5450 (Special)
BL99-57	Approves contract with VU School of Medicine for student participation in emergency services (Special)
BL99-58	Approves contract with VU School of Medicine for student participation in emergency services (Special)
BL99-59	Approves children living in poverty grant (Special)
BL99-60	(Withdrawn)
BL99-61	Adds definition to § 6.54.010 and renumbers remaining subsections; amends §§ 6.54.010(D) and 6.54.090; repeals and replaces § 6.54.010(Y) and (Z)(3); repeals § 6.54.010(O), sexually oriented businesses (6.54)
BL99-62	Acquisition of property for public project (Special)
BL99-63	Approves grant for performance of general and physically handicapped library services (Special)
BL99-64	Approves contract for enhanced 911 services (Special)
BL99-65	Authorizes acceptance of proposal regarding project 19076-2236-14 (Special)
BL99-66	Authorizes acceptance of proposal regarding project 19076-2235-04 (Special)
BL99-67	(Withdrawn)
BL99-68	Accepts Nashville Diocese of the Roman Catholic Church right-of-way (Special)
Amdt. 1	Amends Ord. BL99-68 (Special)
BL99-69	Authorizes mayor to submit five-year housing and community development consolidated plan (Special)
BL99-70	Accepts donation of pickup truck and van (Special)
BL99-71	Approves Bulletproof Vest Partnership grant (Special)
BL99-72	Approves Department for the Gang Resistance Education and Training Program grant (Special)
BL99-73	Approves joint funding agreement with US Department of the Interior for river water testing (Special)
BL99-74	Approves agreement for privately funded construction of golf and youth facilities in Shelby Park (Special)
BL99-75	Adopts official street and alley acceptance and maintenance map (Special)
BL99-76	Accepts certain property for use as park space (Special)
BL99-77	Authorizes acceptance of proposal regarding project 19002-2175-44 (Special)
BL99-78	Acquisition of property for utility easement (Special)
BL99-79	Authorizes Qwest Communications to construct fiber optic cable line (Special)
BL99-80	Abandons sewer easement (Special)
BL99-81	Abandons sewer easement (Special)
BL99-82	Abandons sewer easement (Special)
BL99-83	Abandons sewer easement (Special)
BL99-84	Amends official street and alley acceptance and maintenance map (Special)
BL99-85	Amends official street and alley acceptance and maintenance map (Special)
BL99-86	Amends §§ 17.16.110, 17.16.210, zoning (17.16)
Amdt. 1	Amends §§ 1 and 2 of Ord. BL99-86 (17.16)
BL99-87	Rezone (Special)
BL99-88	(Withdrawn)
BL99-89	Approves Department of Finance and Administration grant (Special)
BL99-90	(Withdrawn)
BL99-91	Rezone (Special)
BL99-92	Rezone (Special)
Amdt. 1	Amends Ord. BL99-92 (Special)
BL99-93	(Defeated)
BL99-94	(Defeated)
BL99-95	Rezone (Special)
BL99-96	Rezone (Special)
BL99-97	(Defeated)
BL99-98	(Defeated)
BL99-99	Rezone (Special)
BL99-100	Rezone (Special)
BL99-101	Rezone (Special)
Amdt. 1	Amends Ord. BL99-101 (Special)
BL99-102	Rezone (Special)
BL99-103	Rezone (Special)
BL99-104	Rezone (Special)
BL99-105	Amends preliminary site plan (Special)
Amdt. 1	Amends Ord. BL99-105 (Special)
Amdt. 2	Amends Ord. BL99-105 (Special)
BL99-106	Rezone (Special)
BL99-107	(Defeated)
BL99-108	(Withdrawn)
BL99-109	(Withdrawn)
BL99-110	Rezone (Special)
BL99-111	Amends commercial PUD (Special)
Amdt. 1	Amends Ord. BL99-111 (Special)
BL99-112	Rezone (Special)

Ordinance Number	Disposition
BL99-113	(Defeated)
BL99-114	(Withdrawn)
BL99-115	(Withdrawn)
BL99-116	(Withdrawn)
BL99-117	Amends §§ 17.04.060, 17.08.030, 17.12.030, 17.16.070, 17.16.080, 17.16.090, 17.16.180, 17.16.280, 17.20.030, 17.24.030, 17.28.040, 17.32.160, 17.36.060, 17.40.120, 17.40.340, zoning (17.04, 17.08, 17.12, 17.16, 17.20, 17.24, 17.28, 17.32, 17.36, 17.40)
Amdt. 1	Amends §§ 17.16.180, 17.16.090, zoning (17.16)
Amdt. 2	Amends § 2 of Ord. BL99-117 (Not codified)
BL99-118	Amends § 7.08.090, beer permits (7.08)
BL99-119	(Withdrawn)
BL99-120	Approves agreement with Irish Express Logistics, Inc. (Special)
BL99-121	Approves agreement with Chasetel Real Estate Holding (Special)
Amdt. 1	Amends Ord. BL99-121 (Special)
BL99-122	Abandons certain water line (Special)
BL99-123	Approves lease agreement through metro social services commission and P.S. Business Park L.P. (Special)
BL99-124	Rezone (Special)
BL2000-125	Approves Crime Act Victim Assistance grant (Special)
BL2000-126	Accepts waste tire storage and disposal grant (Special)
BL2000-127	Acquisition of property for easement (Special)
BL2000-128	Code readoption (Not codified)
BL2000-129	Authorizes construction of utility tunnels (Special)
BL2000-130	Abandons certain sewer line, water line and easements (Special)
Amdt. 1	Amends Ord. BL2000-130 (Special)
BL2000-131	Abandons certain sewer line and easement (Special)
BL2000-132	Amends official street and alley acceptance and maintenance map (Special)
BL2000-133	Amends official street and alley acceptance and maintenance map (Special)
BL2000-134	Amends official street and alley acceptance and maintenance map (Special)
BL2000-135	Amends official street and alley acceptance and maintenance map (Special)
BL2000-136	Amends official street and alley acceptance and maintenance map (Special)
BL2000-137	Authorizes payment by Old Hickory Hills pumping station (Special)
BL2000-138	Accepts donation from Nathanson Foundation (Special)
BL2000-139	Accepts donation from Mr. and Mrs. Sherwood Cordell and Mr. and Mrs. Keith Skinner families (Special)
BL2000-140	Approves acceptance of law enforcement block grant (Special)
Amdt. 1	Amends Ord. BL2000-140 (Special)
BL2000-141	Approves urban and community forestry grant assistance program grant (Special)
BL2000-142	Approves Forensic Medical Management Services, P.C. lease agreement (Special)
BL2000-143	Acquisition of property (Special)
BL2000-144	Authorizes Level 3 Communications to construct, install and maintain fiber optic cable (Special)
BL2000-145	Rezone (Special)
BL2000-146	Abandons and accepts certain rights-of-way (Special)
Amdt. 1	Adds sentence to § 1(a) of Ord. BL2000-146 (Special)
BL2000-147	Authorizes payment for certain construction costs (Special)
BL2000-148	Authorizes participation in project 98-SL-91A (Special)
BL2000-149	(Defeated)
BL2000-150	Rezone (Special)
BL2000-151	Rezone (Special)
BL2000-152	Rezone (Special)
BL2000-153	Rezone (Special)
BL2000-154	Rezone (Special)
BL2000-155	(Withdrawn)
BL2000-156	Rezone (Special)
BL2000-157	(Withdrawn)
BL2000-158	Rezone (Special)
BL2000-159	Amends commercial PUD (Special)
BL2000-160	(Withdrawn)
BL2000-161	(Withdrawn)
BL2000-162	Rezone (Special)
BL2000-163	Applies provisions of PUD proposal no. 99P-009U-13 to certain property (Special)
BL2000-164	Cancels certain PUD (Special)
BL2000-165	(Withdrawn)
BL2000-166	(Withdrawn)
BL2000-167	Rezone (Special)
BL2000-168	Applies provisions of PUD proposal no. 2000P-001U-10) to certain property (Special)
Amdt. 1	Amends § 1 of Ord. BL2000-168 (Special)
BL2000-169	Rezone (Special)
BL2000-170	Cancels portion of commercial PUD (Special)
BL2000-171	Amends § 17.08.030, zoning (17.08)
BL2000-172	Amends § 17.40.280, zoning (17.08)
BL2000-173	(Withdrawn)
BL2000-174	Rezone (Special)

Ordinance Number	Disposition
BL2000-175	Amends § 2.56.610, metropolitan courts (2.56)
BL2000-176	Approves grant from TN Commission on Children and Youth (Special)
BL2000-177	Approves grant from TN Department of Human Services (Special)
BL2000-178	Approves sale of certain property (Special)
BL2000-179	Acquisition of property for utility easements (Special)
BL2000-180	Authorizes Saeed Sassan to participate in Project No. 97-SL-247 (Special)
BL2000-181	Authorizes metro government participation with McEwen Development, LLC, for on-site and off-site sewer project (Special)
BL2000-182	Accepts donation from Priest Lake Limited Partnership (Special)
BL2000-183	Approves grant form Gates Library Foundation (Special)
BL2000-184	Approves grant from TN administrative office of the courts (Special)
BL2000-185	Approves sale of certain property (Special)
BL2000-186	Street name change (Special)
BL2000-187	Street name change (Special)
BL2000-188	Renames certain street (Special)
BL2000-189	Closes portion of certain alley (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2000-189 (Special)
BL2000-190	Closes portion of certain alley (Special)
BL2000-191	Closes certain alley (Special)
BL2000-192	Abandons portion of public utility easement (Special)
BL2000-193	Abandons certain utility easement (Special)
BL2000-194	Rezone (Special)
BL2000-195	Rezone (Special)
BL2000-196	Rezone (Special)
BL2000-197	Rezone (Special)
BL2000-198	Rezone (Special)
BL2000-199	Rezone (Special)
BL2000-200	(Withdrawn)
BL2000-201	Rezone (Special)
BL2000-202	(Withdrawn)
BL2000-203	Amends § 17.08.030, zoning (Special)
BL2000-204	Acquisition of certain property (Special)
BL2000-205	Accepts grant agreement between TN Emergency Management Agency and Mayor's Office of Emergency Management for tornado reimbursement (Special)
BL2000-206	Accepts donation from Southfork Development, Ltd. (Special)
BL2000-207	Authorizes Hugh Cates, d.b.a. Pinkerton Estates to participate in Project No. 97-SG-84 (Special)
BL2000-208	Abandons sewer line and easement (Special)
BL2000-209	Closes portions of certain streets (Special)
Amdt. 1	Amends § 1 of Ord. BL2000-209 (Special)
BL2000-210	(Withdrawn)
BL2000-211	Rezone (Special)
BL2000-212	Rezone (Special)
BL2000-213	(Withdrawn)
BL2000-214	Rezone (Special)
BL2000-215	(Withdrawn)
BL2000-216	(Withdrawn)
BL2000-217	(Withdrawn)
BL2000-218	Rezone (Special)
BL2000-219	Cancels certain residential planned unit development district (Special)
BL2000-220	Rezone (Special)
BL2000-221	Rezone (Special)
Amdt. 1	Amends § 1 and attached sketch of Ord. BL2000-221 (Special)
BL2000-222	(Withdrawn)
BL2000-223	Rezone (Special)
BL2000-224	(Withdrawn)
BL2000-225	Rezone (Special)
BL2000-226	(Withdrawn)
BL2000-227	Rezone (Special)
BL2000-228	Amends preliminary plan of certain planned unit development district (Special)
BL2000-229	(Withdrawn)
BL2000-230	Rezone (Special)
Amdt. 1	Amends language in § 1 of Ord. BL2000-230 (Special)
BL2000-231	Applies provisions of PUD to certain property (Special)
Amdt. 1	Amends language in § 1 of Ord. BL2000-231 (Special)
BL2000-232	Rezone (Special)
BL2000-233	Rezone (Special)
BL2000-234	Rezone (Special)
BL2000-235	Rezone (Special)
BL2000-236	Amends portion of certain planned unit development district (Special)
BL2000-237	(Withdrawn)
BL2000-238	(Withdrawn)
BL2000-239	(Withdrawn)
BL2000-240	(Withdrawn)
BL2000-241	Amends § 17.08.030, zoning (17.08)
BL2000-242	Amends §§ 17.08.030 and 17.16.060, zoning (17.08, 17.16)
Amdt. 1	Deletes phrase from Ord. BL2000-242 § 1 (17.16)
BL2000-243	(Withdrawn)
BL2000-244	Amends § 17.04.060, zoning (17.04)
BL2000-245	(Withdrawn)
BL2000-246	Accepts privately developed water and sanitary sewerage facilities (Special)

Ordinance Number	Disposition
BL2000-247	Adds §§ 6.80.040, 6.80.175, 6.80.185, 6.80.190, 6.80.585; amends §§ 6.80.010, 6.80.120, 6.80.140, 6.80.145, 6.80.160, 6.80.170, 6.80.330, 6.80.425, 6.80.435, 6.80.450, 6.80.525, 6.80.535, 6.80.545, 6.80.555, substitutes "metropolitan transportation licensing committee" for "metropolitan taxicab and wrecker licensing board" throughout chapter; deletes and replaces §§ 6.80.550, 6.80.575, wrecker and towing service (6.80)
Amdt. 1	Amends language in §§ 3, 4, 10, 21 and 24 of BL2000-247 (6.80)
BL2000-248	Approves agreement to install solar powered electricity generating facility, grants easement (Special)
BL2000-249	Authorizes the Industrial Development Board of Nashville to participate in Project No. 98-WG-65 (Special)
BL2000-250	Adds Ch. 5.10, public art financing (5.10)
BL2000-251	Authorizes Williams Communications, Inc. to construct, install and maintain fiber optic cable (Special)
BL2000-252	Closes portion of certain alley (Special)
BL2000-253	Closes certain alley (Special)
BL2000-254	Abandons public utility easement (Special)
BL2000-255	Abandons certain public utility easements (Special)
BL2000-256	Rezone (Special)
BL2000-257	(Withdrawn)
BL2000-258	Rezone (Special)
Amdt. 1	Amends language in § 1 and sketch of BL2000-258 (Special)
BL2000-259	Rezone (Special)
Amdt. 1	Amends caption, § 1 and attached sketch of Ord. BL2000-259 (Special)
BL2000-260	Rezone (Special)
BL2000-261	Applies provisions of PUD to certain property (Special)
BL2000-262	(Withdrawn)
BL2000-263	Amends § 13.24.090, parks, recreational facilities and cemeteries (13.24)
BL2000-264	Amends § 11.12.060, offenses against public peace (11.12)
BL2000-265	Accepts donation of certain property (Special)
BL2000-266	Authorizes sale of certain property (Special)
BL2000-267	Abandons certain sewer lines and easements (Special)
BL2000-268	Rezone (Special)
BL2000-269	Rezone (Special)
BL2000-270	Rezone (Special)
BL2000-271	(Withdrawn)
BL2000-272	(Withdrawn)
BL2000-273	(Withdrawn)
BL2000-274	Authorizes Metropolitan Human Relations Commission to accept cash donations (Special)
BL2000-275	Readopts code (1.01)
BL2000-276	Accepts and appropriates donations to Metropolitan Police Department Canine Unit (Special)
BL2000-277	Abandons certain public utility easements (Special)
BL2000-278	Street and alley closures (Special)
BL2000-279	Rezone (Special)
BL2000-280	Rezone (Special)
BL2000-281	Rezone (Special)
BL2000-282	Street name change (Special)
BL2000-283	Accepts grant funds from US Department of Treasury (Special)
BL2000-284	Authorizes acquisition of certain property (Special)
BL2000-285	Authorizes acceptance of state contract No. 2000329 (Special)
BL2000-286	Authorizes acceptance of state contract No. 2000330 (Special)
BL2000-287	Authorizes acceptance of state contract No. 2000244 (Special)
BL2000-288	Approves creation of permanent easement on certain property (Special)
BL2000-289	Adopts Capital Improvements Budget and Program 2000-2001 through 2005-2006 (Special)
BL2000-290	(Substitute bill) FY 2000-2001 budget (Special)
BL2000-291	FY 2000-2001 tax levy (Special)
BL2000-292	Amends Ch. 3.64, employee assistance program (3.64)
BL2000-293	Approves contract with Nashville area Chamber of Commerce for tourism promotion (Special)
BL2000-294	Approves grant from Nashville Prevention Partnership (Special)
BL2000-295	Approves certain lease agreement (Special)
BL2000-296	Authorizes land donation to YWCA of Nashville (Special)
BL2000-297	Street closure (Special)
BL2000-298	Abandons certain sewer easements (Special)
BL2000-299	Abandons certain sewer line and easement (Special)
BL2000-300	Abandons portion of certain pubic utility and drainage easement (Special)
BL2000-301	Abandons certain drainage easements (Special)
BL2000-302	Rezone (Special)

Ordinance Number	Disposition
BL2000-303	Rezone (Special)
BL2000-304	Applies provisions of institutional overlay district to certain property (Special)
BL2000-305	Rezone (Special)
BL2000-306	Rezone (Special)
BL2000-307	Rezone (Special)
BL2000-308	Rezone (Special)
BL2000-309	(Withdrawn)
BL2000-310	(Withdrawn)
BL2000-311	Rezone (Special)
BL2000-312	Rezone (Special)
BL2000-313	Rezone (Special)
BL2000-314	Rezone (Special)
BL2000-315	Rezone (Special)
BL2000-316	Rezone (Special)
BL2000-317	Amends § 17.12.050, zoning (17.12)
Amdt. 1	Adds new § 2; renumbers previous § 2 as § 3 of Ord. BL2000-317 (17.12)
BL2000-318	Cancels portion of residential PUD (Special)
BL2000-319	Amends § 17.08.030, zoning (17.08)
BL2000-320	Amends § 7.16.030, alcoholic beverage regulations (7.16)
BL2000-321	Accepts grant agreement with TN Department of Children's Services for provision of Juvenile Accountability Incentive Block Grant Program Services (Special)
BL2000-322	(Withdrawn)
BL2000-323	Accepts grant to subsidize emergency management (Special)
BL2000-324	Amends Ch. 2.100, metropolitan transportation and licensing board (2.100)
BL2000-325	Repeals and replaces Ch. 6.72, taxicabs (6.72)
BL2000-326	Authorizes public works department lease of certain equipment (Special)
BL2000-327	Approves conveyance of permanent easement for a water line on certain property (Special)
BL2000-328	Street name change (Special)
BL2000-329	Readopts code (1.01)
BL2000-330	Approves sale of certain property (Special)
BL2000-331	Approves sale of certain property (Special)
BL2000-332	Approves sale of certain property (Special)
BL2000-333	Approves sale of certain property (Special)
BL2000-334	Approves sale of certain property (Special)
BL2000-335	Approves sale of certain property (Special)
BL2000-336	Authorizes grant for purchase of public library computers (Special)
BL2000-337	Adds Art. VI to Ch. 2.24, department of finance (2.24)
BL2000-338	Approves agreement for review and accreditation of the MNPD (Special)
BL2000-339	Authorizes acquisition of property for utility easements (Special)
BL2000-340	Authorizes acquisition of property for utility easements (Special)
BL2000-341	Authorizes acquisition of property for utility easements (Special)
BL2000-342	Authorizes water and sewer line construction in railroad rights-of-way (Special)
BL2000-343	Repeals and replaces §§ 16.20.150 and 16.20.154, electrical code (16.20)
BL2000-344	Abandons certain sewer line and easement (Special)
BL2000-345	Abandons certain water line and easement (Special)
BL2000-346	Abandons certain sewer lines and easements (Special)
BL2000-347	Street and alley closure (Special)
BL2000-348	Street and alley closure (Special)
BL2000-349	Rezone (Special)
BL2000-350	(Defeated)
BL2000-351	Rezone (Special)
BL2000-352	(Defeated)
BL2000-353	Rezone (Special)
BL2000-354	Amends § 2.152.040, Metro beautification and environment commission (2.152)
BL2000-355	Authorizes property purchase from HUD (Special)
BL2000-356	Authorizes acquisition of property (Special)
BL2000-357	Grants permanent easement (Special)
BL2000-358	Authorizes Utility Relocation Contract No. 5587 for certain utilities construction (Special)
BL2000-359	Authorizes acceptance of Contract No. 2000461 and approval by resolution of utility relocation, traffic signal maintenance and/or street lighting or contracts and documents associated with said project (Special)
BL2000-360	Authorizes acquisition of certain property (Special)
BL2000-361	Authorizes acquisition of certain property (Special)
BL2000-362	Amends § 17.40.060, zoning (17.40)
Amdt. 1	Amends § 1 of Ord. BL2000-362 (17.40)
BL2000-363	(Withdrawn)

Ordinance Number	Disposition
BL2000-364	Adds §§ 17.36.400 [17.36.430] and 17.36.410 [17.36.440]; Amends §§ 17.04.060, 17.12.020, 17.12.035, 17.12.040, 17.12.060, Table 17.20.030, 17.20.040, 17.20.060, 17.20.080, 17.20.100, 17.24.140, 17.24.150, 17.24.160, 17.24.210, 17.24.240, 17.36.010, 17.40.010, and 17.40.170, zoning (17.04, 17.12, 17.20, 17.24, 17.36, 17.40)
Amdt. 1	Amends Exh. A of Ord. BL2000-364 (17.12)
Amdt. 2	Amends Exh. A of Ord. BL2000-364 (17.12)
Amdt. 3	Amends Exh. A of Ord. BL2000-364 (17.40)
Amdt. 4	Amends Exh. A of Ord. BL2000-364 (17.20)
Amdt. 5	Amends Exh. A of Ord. BL2000-364 (17.12)
Amdt. 6	Amends Exh. A of Ord. BL2000-364 (17.12)
Amdt. 7	Amends Exh. A of Ord. BL2000-364 (17.12)
Amdt. 8	Amends Exh. A of Ord. BL2000-364 (17.12)
Amdt. 9	Amends Exh. A of Ord. BL2000-364 (17.20)
Amdt. 10	Amends Exh. A of Ord. BL2000-364 (17.36)
BL2000-365	Adds §§ 17.36.400—17.36.420 and 17.40.160, zoning (17.36, 17.40)
Amdt. 1	Amends Exh. A of Ord. BL2000-365 (17.40)
Amdt. 2	Amends Exh. A of Ord. BL2000-365 (17.40)
BL2000-366	(Withdrawn)
BL2000-367	Amends official zoning map (Special)
Amdt. 1	Amends language in § 1 of Ord. BL2000-367 (Special)
BL2000-368	Amends official zoning map (Special)
BL2000-369	Amends official zoning map (Special)
BL2000-370	Amends official zoning map (Special)
BL2000-371	Amends official zoning map (Special)
BL2000-372	(Defeated)
BL2000-373	(Withdrawn)
BL2000-374	Applies PUD provisions to certain property (Special)
BL2000-375	Amend certain PUD (Special)
BL2000-376	Amends certain PUD (Special)
BL2000-377	Adopts property identification maps (Not codified)
BL2000-378	Amends § 11.12.070, offenses against public peace (11.12)
Amdt. 1	Amends § 2 of Ord. BL2000-378 (11.12)
BL2000-379	Accepts grant agreement for drug control and systems improvement (Special)
BL2000-380	Approves grant for labor force re-entry programs (Special)
BL2000-381	Approves grant for additional funding (Special)
BL2000-382	Approves grant for labor force re-entry programs (Special)
BL2000-383	Approves grant for labor force re-entry programs (Special)
BL2000-384	Approves grant for labor force re-entry programs (Special)
BL2000-385	Approves grant for welfare recipient self sufficiency programs (Special)
BL2000-386	Approves grant for families first employment and training services (Special)
BL2000-387	Authorizes conveyance of real property (Special)
BL2000-388	Authorizes mayor to execute agreements to purchase electrical power (Special)
BL2000-389	Authorizes acceptance of certain proposal (Special)
BL2000-390	Authorizes acceptance of certain proposal (Special)
BL2000-391	Authorizes acceptance of certain proposal (Special)
BL2000-392	Authorizes acceptance of Contract No. 2000443, for pedestrian and bicycle plan (Special)
BL2000-393	Amends official zoning map (Special)
BL2000-394	Amends official zoning map (Special)
BL2000-395	Nullification fee for alarm permit violation (10.60)
BL2000-396	Approves grant from U.S. Department of Justice Assistance for Bulletproof Vest Partnership Grant (Special)
BL2000-397	Approves grant from U.S. Department of Justice to purchase equipment for domestic terrorism response (Special)
BL2000-398	Approves grant for Child and Family Intervention grant (Special)
BL2000-399	Approves grant for Stop the Violence Against Women Program (Special)
BL2000-400	Approves grant contract for Victims of Crime Act Grant (Special)
BL2000-401	Abandons certain sewer line and easement (Special)
BL2000-402	Approves cost-sharing agreement with Department of the Army for Richard Creek Greenway planning work (Special)
BL2000-403	Communications policy for persons with disabilities (2.214)
BL2000-404	Amends § 2.174.090, district management corporation (2.174)
BL2000-405	Amends § 7.08.090, beer and alcoholic beverages of less than five percent (7.08)
BL2000-406	Amends § 2.148.010, tourism and convention commission (2.148)
BL2000-407	Establishes low-income elderly resident assistance program for FY 2000-2001 (Special)
BL2000-408	Authorizes Albert Rossi to participate for Project Nos. 99-SL-176 and 99-SG-84 construction (Special)

Ordinance Number	Disposition
BL2000-409	Approves cooperative agreement with U.S. Department of the Army for Dry Creek wastewater treatment plant streambank protection program (Special)
BL2000-410	Approves grant for urban and community forestry grant assistance program (Special)
BL2000-411	Approves grant for criminal justice system improvement (Special)
BL2000-412	Approves agreement with Social Security Administration for payment for reporting any facility inmates receiving social security benefits (Special)
BL2000-413	Accepts grant agreement for Forensic Alternative Community Treatment Grant; accepts donation (Special)
BL2000-414	Authorizes grant for provision of services to children and their families living in poverty (Special)
BL2000-415	Approves certain lease agreement (Special)
BL2000-416	Approves grant for a mental health court (Special)
BL2000-417	Approves grant for residential substance abuse treatment projects (Special)
BL2000-418	(Defeated)
BL2000-419	Approves granting of certain permanent easement (Special)
BL2000-420	Abandons certain public utility and drainage easement (Special)
BL2000-421	Street name change (Special)
BL2000-422	Grants permanent easement (Special)
BL2000-423	(Withdrawn)
BL2000-424	(Withdrawn)
BL2000-425	Approves a contract with Middle Tennessee council / Boy Scouts of America for special event activities (Special)
BL2000-426	Approves redirection of grant income (Special)
BL2000-427	Authorizes conveyance of certain easement and park improvements (Special)
BL2000-428	Accepts directional road sign donation (Special)
BL2000-429	Voids 8/27/56 agreement with Consolidated Development, Inc. (Special)
BL2000-430	Grants franchise to Digital Access Corporation of Tennessee, Inc., for cable communications system (Special)
BL2000-431	Grants franchise to Knology of Nashville, Inc. for cable communications system (Special)
BL2000-432	Amends § 2.56.530 and 2.56.550, metropolitan courts (2.56)
BL2000-433	Accepts grant agreement for Title IV-D child support services (Special)
BL2000-434	Authorizes grant for dial-in audio reading service for the blind and physically handicapped (Special)
BL2000-435	Authorizes grant for statewide online interlibrary loan system (Special)
BL2000-436	Authorizes acquisition of property (Special)
BL2000-437	Authorizes acquisition of property (Special)
BL2000-438	Closes portion of Edenwold Road Connector and dedicates replacement of right-of-way (Special)
BL2000-439	Authorizes acquisition of property (Special)
BL2000-440	Closes portion of Alley No. 1211 (Special)
BL2000-441	(Withdrawn)
BL2000-442	Amends § 7.08.090, beer and alcoholic beverages of less than five percent (7.08)
Amdt. 1	Amends § 1 of Ord. BL2000-442 (7.08)
BL2000-443	Amends § 13.20.020, excavations and obstructions (13.20)
BL2000-444	Amends § 13.16.010, encroachments (13.16)
Amdt. 1	Amends §1 of BL2000-444 (13.16)
BL2000-445	Grants franchise to Metromedia Fiber Network, Inc., for a telecommunications system (Special)
BL2000-446	Approves joint funding agreement with US Dept. of the Interior and county water and sewerage services dept. (Special)
BL2000-447	Accepts state contract for Contract No. 2000508 (Special)
BL2000-448	Substitute ord. authorizing acquisition of property (Special)
BL2000-449	Authorizes acquisition of property (Special)
BL2000-450	Authorizes acquisition of property (Special)
BL2000-451	Abandons portion of public utility and drainage easement (Special)
BL2000-452	Closes unbuilt portion of Alley No. 147 (Special)
BL2000-453	Amends official zoning map (Special)
BL2000-454	Amends official zoning map (Special)
BL2000-455	Amends official zoning map (Special)
BL2000-456	Applies neighborhood landmark district to certain property (Special)
BL2000-457	Amends official zoning map (Special)
BL2000-458	Amends official zoning map (Special)
BL2000-459	(Withdrawn)
BL2000-460	Amends official zoning map (Special)
BL2000-461	Amends official zoning map (Special)
BL2000-462	(Withdrawn)
BL2000-463	(Withdrawn)
BL2000-464	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2000-465	Rezone (Special)
BL2000-466	Rezone (Special)
BL2000-467	Amends certain residential planned unit development district (Special)
BL2000-468	(Defeated)
BL2000-469	Rezone (Special)
BL2000-470	(Withdrawn)
BL2000-471	(Withdrawn)
BL2000-472	(Withdrawn)
BL2000-473	Rezone (Special)
BL2000-474	Rezone (Special)
BL2000-475	Applies new planned unit development district to certain property (Special)
BL2000-476	Applies provisions of urban overlay district to certain properties (Special)
BL2000-477	Amends §§ 17.16.030 and 17.20.030, zoning (17.16, 17.20)
BL2000-478	Amends § 17.04.060, zoning (17.04)
BL2000-479	Amends § 17.20.120, zoning (17.20)
Amdt. 1	Amends § 17.20.120C, Ord. BL2000-479 (17.20)
BL2000-480	Amends § 17.16.060, zoning (17.16)
BL2000-481	(Withdrawn)
BL2000-482	(Withdrawn)
BL2000-483	(Defeated)
BL2000-484	(Withdrawn)
BL2000-485	Cancels and amends portion of commercial planned unit development district (Special)
BL2000-486	Rezone (Special)
BL2000-487	Approves grant for Teen Homework and Computing Center Project (Special)
BL2000-488	Approves service contract for reimbursement (Special)
BL2000-489	Authorizes Utility Relocation Contract No. 5615 with state department of transportation (Special)
BL2000-490	Authorizes acquisition of property (Special)
BL2000-491	Authorizes Whispering Hills Church to participate in Sewer Project No. 97-SG-84 (Special)
BL2000-492	Approves creation of permanent easement (Special)
BL2000-493	Abandons certain sewer and water lines and easements (Special)
BL2000-494	(Withdrawn)
BL2000-495	Authorizes mayor to submit annual update to the Consolidated Plan for Housing and Community Development programs to the U.S. Department of Housing and Urban Development (Special)
BL2000-496	Approves agreement with Dell Computer Corporation for operation of foreign trade zone site (Special)
BL2000-497	Repeals §§ 16.52.010—16.52.060 (Repealer)
BL2000-498	Amends §§ 10.86.010, 10.86.040 and 10.86.050, vacant property review commission (10.86)
BL2000-499	Adds Ch. 6.14, foreign trade zones (6.14)
BL2000-500	Dead animal removal (10.70)
BL2000-501	Accepts rifle donation to police department S.W.A.T. unit (Special)
BL2000-502	Accepts donations to police department for police property crimes section equipment purchase (Special)
BL2000-503	Approves grant for Victims of Crime Act grant project (Special)
BL2000-504	Approves grant for youth services officer training (Special)
BL2000-505	Approves agreement with U.S. Bureau of Alcohol, tobacco and Firearms for overtime cost reimbursement (Special)
BL2000-506	Accepts law enforcement block grant (Special)
BL2000-507	Accepts state waste tire and storage grant (Special)
BL2000-508	Authorizes acquisition of property (Special)
BL2000-509	Approves sale of certain property (Special)
BL2000-510	Approves sale of certain property (Special)
BL2000-511	Abandons sewer line and easement (Special)
BL2000-512	Readopts code (1.01)
BL2000-513	Closes portion of Rothwood Avenue (Special)
BL2000-514	Abandons portion of existing public utility and drainage easement (Special)
BL2000-515	Rezone (Special)
BL2000-516	(Withdrawn)
BL2000-517	Amends § 2.24.250, department of finance (2.24)
Amdt. 1	Amends § 1 of Ord. BL2000-517 (2.24)
BL2000-518	Memorandum of understanding (Special)
BL2000-519	Approves shared parking agreement with Edmonson Pike Medical Center LLC (Special)
BL2000-520	Authorizes state grant for library services (Special)
BL2000-521	Approves sale of certain property (Special)
BL2000-522	Accepts state grant for provision of disaster assistance (Special)
BL2000-523	Accepts state grant for provision of disaster assistance (Special)
BL2000-524	Approves state grant for rapid response services for dislocated workers through Nashville Career Advancement Center (Special)
BL2000-525	(Withdrawn)

Ordinance Number	Disposition
BL2000-526	Adopts official street and alley acceptance and maintenance map (Special)
BL2000-527	Authorizes Dell Computer Corporation ground monument sign (Special)
BL2000-528	Street name change (Special)
BL2000-529	Applies neighborhood landmark overlay district to certain property (Special)
BL2000-530	(Withdrawn)
BL2000-531	(Withdrawn)
BL2000-532	(Withdrawn)
BL2000-533	Rezone (Special)
BL2000-534	Rezone (Special)
BL2000-535	(Withdrawn)
BL2000-536	Rezone (Special)
BL2000-537	Rezone (Special)
BL2000-538	Rezone (Special)
BL2000-539	(Withdrawn)
BL2000-540	(Withdrawn)
BL2000-541	(Withdrawn)
BL2000-542	Rezone (Special)
BL2000-543	Applies provisions of planned unit development district to certain property (Special)
BL2000-544	Rezone (Special)
BL2000-545	Rezone (Special)
BL2000-546	Amends preliminary plan of certain residential planned unit development district (Special)
BL2000-547	Amends portion of certain residential PUD (Special)
BL2000-548	Rezone (Special)
BL2000-549	Rezone (Special)
BL2000-550	Rezone (Special)
BL2000-551	Rezone (Special)
BL2000-552	Rezone (Special)
BL2000-553	Rezone (Special)
BL2000-554	Rezone (Special)
BL2000-555	Rezone (Special)
BL2000-556	Rezone (Special)
BL2000-557	Amends and cancels portion of certain commercial (general) planned unit development district (Special)
BL2000-558	Rezone (Special)
BL2000-559	(Withdrawn)
BL2000-560	(Withdrawn)
BL2000-561	Amends § 3.40.010, minimum benefits, options, and death before retirement (3.40)
BL2000-562	Approves sale of certain property (Special)
BL2000-563	Authorizes police department to accept donation (Special)
BL2000-564	Authorizes mayor to execute memorandum of understanding (Special)
BL2000-565	Street name change (Special)
BL2000-566	(Failed)
BL2000-567	Closes portion of certain road (Special)
BL2000-568	Authorizes Twenty One Management, LLC to construct, install and maintain certain awning (Special)
BL2000-569	(Failed)
BL2000-570	Authorizes sale of certain property (Special)
BL2000-571	Approves transfer of interests in certain real property (Special)
BL2000-572	Approves agreement with state of Tennessee for reimbursement of funds expended for litter pickup using inmate labor (Special)
BL2000-573	Authorizes participation in construction of Project No. 97-SG-84 (Special)
BL2000-574	Approves project cooperation agreement with U.S. Department of the Army for Metro Center Levee improvements (Special)
BL2001-575	Readopts code (1.01)
BL2001-576	Authorizes entrance into Utility Relocation Contract No. 5634 (Special)
BL2001-577	Authorizes conveyance of temporary easement (Special)
BL2001-578	Closes unused portion of Willowbrook Drive (Special)
BL2001-579	Renames certain street (Special)
BL2001-580	Abandons portion of certain street (Special)
BL2001-581	Abandons certain alley (Special)
BL2001-582	Grants franchise to Digital Access Corporation of Tennessee, Inc., for telecommunications system (Special)
BL2001-583	Approves lease for One Room Drop-In School (Special)
BL2001-584	Approves contract with state administrative office of the courts for professional services (Special)
BL2001-585	Repeals and replaces Chs. 2.88, board of property standards and appeals, and 16.24, property standards (2.88, 16.24)
BL2001-586	Authorizes acquisition of property (Special)
BL2001-587	Authorizes acquisition of property (Special)
BL2001-588	Authorizes sale of certain property (Special)
BL2001-589	Accepts payment for Cloverland Drive improvements (Special)
BL2001-590	Accepts donation from Motorola Communications and Electronics (Special)
BL2001-591	Grants consent for cable television franchise and system transfer of control (Special)
BL2001-592	Rezone (Special)
BL2001-593	(Defeated)

Ordinance Number	Disposition
BL2001-594	Rezone (Special)
BL2001-595	Amends portion of residential PUD (Special)
BL2001-596	(Withdrawn)
BL2001-597	Rezone (Special)
BL2001-598	Rezone (Special)
BL2001-599	Rezone (Special)
BL2001-600	Rezone (Special)
BL2001-601	Rezone (Special)
BL2001-602	Rezone (Special)
BL2001-603	Rezone (Special)
BL2001-604	Rezone (Special)
BL2001-605	Rezone (Special)
BL2001-606	(Withdrawn)
BL2001-607	Applies historic landmark overlay district to Eakin School and Cavert School (Special)
BL2001-608	Amends § 2.68.010, meetings of boards and commissions (2.68)
BL2001-609	Authorizes participation for construction of Project No. 99-SG-267 (Special)
BL2001-610	Accepts grants to provide funding for metropolitan board of public education performance audit (Special)
BL2001-611	Authorizes grant for archival supplies to assist endangered local record preservation (Special)
BL2001-612	Authorizes mayor to enter water sale agreement with city of Brentwood (Special)
BL2001-613	Approves sale of certain property (Special)
BL2001-614	Approves sale of certain property (Special)
BL2001-615	Approves sale of certain property (Special)
BL2001-616	Approves sale of certain property (Special)
BL2001-617	Approves sale of certain property (Special)
BL2001-618	Approves sale of certain property (Special)
BL2001-619	Approves sale of certain property (Special)
BL2001-620	Amends official street and alley maintenance map (Special)
BL2001-621	Closes portion of certain alley (Special)
BL2001-622	Rezone (Special)
BL2001-623	Grants franchise for telecommunications system (Special)
BL2001-624	Approves increase to certain grant (Special)
BL2001-625	Approves grant from state department of finance and administration (Special)
BL2001-626	Approves grant agreement from Workforce Essentials (Special)
BL2001-627	(Withdrawn)
BL2001-628	Accepts donation to metropolitan police department tactical investigation division (Special)
BL2001-629	Accepts transfer of certain property (Special)
BL2001-630	Authorizes acquisition of certain property (Special)
BL2001-631	Approves state grant for rapid response services dislocated workers (Special)
BL2001-632	Approves state grant to establish labor force re-entry programs (Special)
BL2001-633	Approves state grant to establish labor force re-entry programs (Special)
BL2001-634	Approves state grant to establish labor force re-entry programs (Special)
BL2001-635	Approves state grant to establish labor force re-entry programs (Special)
BL2001-636	Approves state grant to establish labor force re-entry programs (Special)
BL2001-637	Approves state grant for incentive funding in labor force re-entry programs (Special)
BL2001-638	Approves state grant to establish labor force re-entry programs (Special)
BL2001-639	Approves state grant to establish labor force re-entry programs (Special)
BL2001-640	Approves state grant agreement for emergency management services (Special)
BL2001-641	Approves grant for urban community forestry grant assistance program (Special)
BL2001-642	Amends §§ 15.64.100, 15.64.205 and 15.64.220, stormwater management (15.64)
BL2001-643	Voids agreement approved by Ord. BL2000-137 and authorizes new agreement (Special)
BL2001-644	Authorizes library board to keep portion of rental charge fees for facilities maintenance and operation (Special)
BL2001-645	Accepts state grant for debris removal project (Special)
BL2001-646	Accepts state grant for acquisition of ten residential structures under hazard mitigation project (Special)
BL2001-647	Authorizes acceptance of Contract No. 2000462 (Special)
BL2001-648	Authorizes acceptance of Contract No. 20001167 (Special)
BL2001-649	Authorizes acceptance of Contract No. 2000234 (Special)
BL2001-650	Authorizes acceptance of Contract No. 2000407 (Special)
BL2001-651	Authorizes acceptance of Contract No. 2000463 (Special)
BL2001-652	Rezone (Special)
BL2001-653	Amends existing commercial (general) PUD (Special)
BL2001-654	Applies planned unit development district to certain property (Special)
BL2001-655	Rezone (Special)

Ordinance Number	Disposition
BL2001-656	Amends residential PUD preliminary plan (Special)
BL2001-657	Rezone (Special)
BL2001-658	Rezone (Special)
BL2001-659	(Withdrawn)
BL2001-660	Rezone (Special)
BL2001-661	Rezone (Special)
BL2001-662	Rezone (Special)
BL2001-663	Rezone (Special)
BL2001-664	Rezone (Special)
BL2001-665	(Withdrawn)
BL2001-666	(Withdrawn)
BL2001-667	Applies PUD district to certain property (Special)
BL2001-668	Rezone (Special)
BL2001-669	Rezone (Special)
BL2001-670	Rezone (Special)
BL2001-671	Applies UDO district to certain property (Special)
BL2001-672	Applies neighborhood landmark overlay district to certain property (Special)
BL2001-673	Applies PUD district to certain property (Special)
BL2001-674	Amends §§ 17.04.060, 17.08.030 and 17.16.070, zoning (17.04, 17.08, 17.16)
BL2001-675	Amends §§ 17.12.020, 17.16.160, and 17.40.750—17.40.770, zoning (17.12, 17.16, 17.40)
BL2001-676	Approves lease agreement (Special)
BL2001-677	Approves conservation easement agreement (Special)
BL2001-678	Accepts grant agreement with state department of children's services (Special)
BL2001-679	Approves sale of certain property (Special)
BL2001-680	Authorizes sale of certain property (Special)
BL2001-681	Authorizes acquisition of certain property (Special)
BL2001-682	Authorizes acquisition of certain property (Special)
BL2001-683	Authorizes acquisition of certain property (Special)
BL2001-684	Abandons certain water lines and easements (Special)
BL2001-685	Applies UDO district to certain property (Special)
Amdt. 1	Amends appendix for Music Row UDO guidelines (Special)
BL2001-686	(Withdrawn)
BL2001-687	Amends § 7.16.030, alcoholic beverage regulations (7.16)
BL2001-688	Authorizes Centex to participate in certain construction project (Special)
BL2001-689	Authorizes Pulte Homes to participate in certain construction project (Special)
BL2001-690	Authorizes Phillips Builders to participate in certain construction project (Special)
BL2001-691	Authorizes director of the department of parks and recreation to accept property donation (Special)
BL2001-692	Amends §§ 2.04.050, 2.04.070 and 2.04.080, metropolitan council (2.04)
BL2001-693	Readopts code (1.01)
BL2001-694	Authorizes property acquisition (Special)
BL2001-695	Amends § 2.04.030, metropolitan council (2.04)
BL2001-696	Amends §§ 12.58.010—12.58.080, roller skates and in-line skates (12.58)
BL2001-697	Adds Ch. 2.175, Nashville career advancement center (2.175)
Amdt. 1	Amends § 2.175.040, Nashville career advancement center (2.175)
BL2001-698	Authorizes metropolitan mayor to execute electrical power purchase contract (Special)
BL2001-699	Accepts grant to provide and maintain improvement of an outdoor public warning system (Special)
BL2001-700	Approves contract for signalization of certain intersection (Special)
BL2001-701	Approves contract for signalization of certain intersection (Special)
BL2001-702	Accepts countywide signal maintenance contract (Special)
BL2001-703	Amends §§ 16.08.010, 16.08.012, 16.08.014, 16.12.120, 16.12.140, 16.16.190, 16.16.240,[16.16.230] 16.20.150 and 16.20.154, buildings and construction (16.08, 16.12, 16.16, 16.20)
BL2001-704	(Withdrawn)
BL2001-705	Adopts capital improvements budget and program 2001-2002 through 2006-2007 for FY 2001-2001 (Special)
BL2001-706	Authorizes MCI Metro Access Transmission Services, LLC to construct, install and maintain fiber optic cable in Davidson County (Special)
BL2001-707	FY 2001-2002 budget (Special)
BL2001-708	Tax levy (Special)
BL2001-709	(Withdrawn)
BL2001-710	(Withdrawn)
BL2001-711	(Failed)
BL2001-712	Approves sale of certain property (Special)
BL2001-713	Authorizes agreement for lease of electrical power facilities (Special)
BL2001-714	Authorizes police department to accept donation (Special)

Ordinance Number	Disposition
BL2001-715	Approves disposition of certain property (Special)
BL2001-716	Authorizes metropolitan mayor to execute agreement with W.L. Hailey, Inc. (Special)
BL2001-717	Authorizes easement exchange contract with BellSouth Telecommunications (Special)
BL2001-718	Authorizes acceptance of state Contract No. 2000459 (Special)
BL2001-719	Authorizes acceptance of state Contract No. 2000512 (Special)
BL2001-720	Authorizes acceptance of state Contract No. 2001212 (Special)
BL2001-721	Authorizes acceptance of state Contract No. 2001226 (Special)
BL2001-722	Accepts grant funds under G.R.E.A.T. cooperative agreement (Special)
BL2001-723	(Withdrawn)
BL2001-724	Closes portion of certain street (Special)
BL2001-725	Closes portion of certain alley (Special)
BL2001-726	Abandons portion of certain alley (Special)
BL2001-727	Rezone (Special)
BL2001-728	Rezone (Special)
BL2001-729	(Withdrawn)
BL2001-730	Rezone (Special)
BL2001-731	Amends residential PUD district (Special)
BL2001-732	Rezone (Special)
BL2001-733	Rezone (Special)
BL2001-734	Amends undeveloped portion of the commercial planned unit development district (Special)
BL2001-735	Rezone (Special)
BL2001-736	Rezone (Special)
BL2001-737	Rezone (Special)
BL2001-738	Rezone (Special)
BL2001-739	Rezone (Special)
BL2001-740	Rezone (Special)
BL2001-741	Rezone (Special)
BL2001-742	(Withdrawn)
BL2001-743	(Withdrawn)
BL2001-744	Amends § 17.16.060(B) and Table 17.20.030, zoning (17.16, 17.20)
BL2001-745	Amends § 17.32.150, zoning (17.32)
BL2001-746	(Withdrawn)
BL2001-747	(Withdrawn)
BL2001-748	(Withdrawn)
BL2001-749	Amends official street and alley map (Special)
BL2001-750	Amends §§ 17.24.020, 17.24.060(F), 17.24.080, 17.24.100(H), 17.24.110(D)(1) and (D)(2), 17.24.110(E)(1), 17.24.120, 17.24.140, 17.24.210(C), 17.24.210(D), figures 17.24.240A—D, landscaping, buffering and tree replacement requirements (17.24)
Amdt. 1	Adds new § 32, amends § 3 and renumbers previous § 32 as § 33 of Ord. BL2001-750 (17.24)
BL2001-751	Approves lease agreement (Special)
BL2001-752	Authorizes acquisition of certain property (Special)
BL2001-753	Authorizes acquisition of certain property (Special)
BL2001-754	Approves lease of certain premises (Special)
BL2001-755	Approves transfer of certain property (Special)
BL2001-756	Accepts state grant for the Hermitage Replanting Project (Special)
BL2001-757	Approves contract with The Hermitage for implementation of a surface transportation program activity (Special)
BL2001-758	Approves state grant for child and family intervention services (Special)
BL2001-759	Approves grant from the United States Department of Justice (Special)
BL2001-760	Approves certain lease agreement (Special)
BL2001-761	Changes certain street name (Special)
BL2001-762	Closes alley No. 624 (Special)
BL2001-763	Closes alley No. 1836 (Special)
BL2001-764	Closes alley No. 913 (Special)
BL2001-765	Rezone (Special)
BL2001-766	(Withdrawn)
BL2001-767	Rezone (Special)
BL2001-768	(Withdrawn)
BL2001-769	Adds new chapter to T. 2, metropolitan employee's consolidated charities program (2.218)
BL2001-770	Abandons sewer lines and easements (Special)
BL2001-771	Readopts code (1.01)
BL2001-772	Amends § 11.12.070(D), offenses against public peace (11.12)
BL2001-773	(Failed)
BL2001-774	Adopts property identification maps (Special)BL2001-775 Adds § 3.40.045; Amends §§ 3.08.010(1), 3.32.040, 3.33.040, 3.36.040, 3.37.040 and 3.40.010(C), personnel (3.08, 3.32, 3.33, 3.36, 3.37, 3.40)
Amdt. 1	Amends § 5 of Ord. BL2001-775 (3.08)
BL2001-776	Amends §§ 3.16.010(A) and 3.16.030(H), contributions and financing (3.16)
BL2001-777	Authorizes removal of financial penalty when collecting funds (Special)
BL2001-778	Amends § 15.60.180(I)(3), industrial waste discharges (15.60)
BL2001-779	Authorizes participation in projects 97-SG-84 and 99-SL-212 (Special)

Ordinance Number	Disposition
BL2001-780	Authorizes participation in project 01-SL-85 (Special)
BL2001-781	Approves service agreement (Special)
BL2001-782	Approves certain lease agreement (Special)
BL2001-783	Authorizes sale of certain property (Special)
BL2001-784	Authorizes sale of certain property (Special)
BL2001-785	Authorizes acquisition of property (Special)
BL2001-786	Authorizes acquisition of property (Special)
BL2001-787	Approves easement from U.S. Army Corps of Engineers (Special)
BL2001-788	Amends official street and alley acceptance and maintenance map (Special)
BL2001-789	Applies neighborhood landmark overlay district to certain property (Special)
BL2001-790	Rezone (Special)
BL2001-791	Rezone (Special)
BL2001-792	Applies planned unit development district to certain property (Special)
BL2001-793	Rezone (Special)
BL2001-794	Rezone (Special)
BL2001-795	Rezone (Special)
BL2001-796	Rezone (Special)
BL2001-797	Rezone (Special)
BL2001-798	Rezone (Special)
BL2001-799	Cancels Commercial (General) Planned Unit Development District abutting certain area (Special)
BL2001-800	(Withdrawn)
BL2001-801	(Withdrawn)
BL2001-802	(Withdrawn)
BL2001-803	Rezone (Special)
BL2001-804	(Failed)
BL2001-805	Rezone (Special)
BL2001-806	Rezone (Special)
BL2001-807	(Failed)
BL2001-808	Rezone (Special)
BL2001-809	Rezone (Special)
BL2001-810	Rezone (Special)
BL2001-811	Amends undeveloped portion of the commercial (general) planned unit development district (Special)
BL2001-812	Establishes low-income elderly resident assistance program for FY 2001-2002 (Special)
BL2001-813	Authorizes acquisition of property (Special)
BL2001-814	Authorizes sale of certain property (Special)
BL2001-815	Authorizes acquisition of certain real property (Special)
BL2001-816	Authorizes certain parcels of property for the greenway system (Special)
BL2001-817	Grant of easement (Special)
BL2001-818	Grant of easement (Special)
BL2001-819	(Withdrawn)
BL2001-820	Amends § 17.40.600, administration and procedures (17.40)
BL2001-821	Amends § 17.40.520, administration and procedures (17.40)
BL2001-822	(Withdrawn)
BL2001-823	Approves state grant for statewide online interlibrary loan system (Special)
BL2001-824	Approves state grant for supervision and day reporting center (Special)
BL2001-825	Abandons sewer lines and easements (Special)
BL2001-826	Abandons sewer lines and easements (Special)
BL2001-827	Approves state grant for Title IV-D child support services (Special)
BL2001-828	Amends official street and alley acceptance and maintenance map (Special)
BL2001-829	(Withdrawn)
BL2001-830	Amends official street and alley acceptance and maintenance map (Special)
BL2001-831	Amends official street and alley acceptance and maintenance map (Special)
BL2001-832	Amends official street and alley acceptance and maintenance map (Special)
BL2001-833	Amends official street and alley acceptance and maintenance map (Special)
BL2001-834	Accepts law enforcement block grant (Special)
BL2001-835	(Withdrawn)
BL2001-836	Abandons sewer lines and easements (Special)
BL2001-837	Authorizes participation in project 97-SG-84 (Special)BL2001-838 Accepts funds for installation of water line (Special)
BL2001-839	Amends §§ 6.10.020 and 6.10.040, public, education and governmental access oversight committee (6.10)
BL2001-840	Amends § 6.08.080, cable communications franchise and regulations (6.08)
BL2001-841	Readopts code (1.01)
BL2001-842	Repeals and replaces Ch. 8.08, vicious dogs (8.08)
Amdt. 1	Adds § 8.08.020(D) to § 2 of Ord. 2001-842; amends § 8.08.010 of § 2 of Ord. 2001-842 (8.08)
BL2001-843	Adds § 8.12.070; repeals and replaces § 8.12.030, miscellaneous animal control regulations (8.12)

Ordinance Number	Disposition
Amdt. 1	Amends language in § 1 of Ord. 2001-843 (8.12)
Amdt. 2	Amends language in § 1 of Ord. 2001-843 (8.12)
BL2001-844	Accepts donation of certain property (Special)
BL2001-845	Approves sale of certain property (Special)
BL2001-846	Authorizes acquisition of certain property (Special)
BL2001-847	Amends official street and alley acceptance and maintenance map (Special)
BL2001-848	Amends official street and alley acceptance and maintenance map (Special)
BL2001-849	Rezone (Special)
BL2001-850	Rezone (Special)
BL2001-851	Cancels portion of certain (general) planned unit development district (Special)
BL2001-852	Rezone (Special)
BL2001-853	Rezone (Special)
BL2001-854	Rezone (Special)
BL2001-855	Rezone (Special)
BL2001-856	Amends §§ 17.36.270, 17.36.290, 17.36.310 and 17.40.130, zoning (17.36, 17.40)
BL2001-857	(Withdrawn)
BL2001-858	Amends § 17.12.035 and Table 17.12.030(B), district bulk regulations (17.12)
BL2001-859	Rezone (Special)
BL2001-860	(Substitute bill) Bond issuance (Special)
BL2001-861	Approves Amdt. 2 to the Phillips-Jackson Street redevelopment plan (Special)
BL2001-862	Amends official street and alley acceptance and maintenance map (Special)
BL2001-863	Amends official street and alley acceptance and maintenance map (Special)
BL2001-864	Amends official street and alley acceptance and maintenance map (Special)
BL2001-865	Abandons right-of-way (Special)
Amdt. 1	Deletes § 2 and renumbers §§ 3—4 accordingly (Special)
Amdt. 2	Repeals and replaces sketch of Ord. 2001-865 (Special)
BL2001-866	Amends official street and alley acceptance and maintenance map (Special)
BL2001-867	Amends official street and alley acceptance and maintenance map (Special)
BL2001-868	Authorizes metropolitan mayor to submit a consolidated plan for housing and community development programs to the US Department of Housing and Urban Development (Special)
BL2001-869	Authorizes contract for improvements to Hillsboro Pike (Special)
BL2001-870	Approves joint funding agreement for operational and maintenance of flow monitoring stations (Special)
BL2001-871	Approves the lease and sale of certain property (Special)
BL2001-872	Approves lease agreement by and between the metropolitan government (Special)
BL2001-873	Authorizes grant of an easement for use in the greenway system (Special)
BL2001-874	Authorizes certain parcels of property for the greenway system (Special)
BL2001-875	(Withdrawn)
BL2001-876	Authorizes donations to the Tennessee Police Athletic League (Special)
BL2001-877	Abandons certain sewer line and easement (Special)
BL2001-878	Authorizes the donation of certain property (Special)
BL2001-879	Accepts donation of certain property (Special)
BL2001-880	Authorizes purchase agreement with the city of Huntsville, Alabama (Special)
BL2001-881	Approves grant for officer training through the Juvenile court (Special)
BL2001-882	Approves grant for the Target Corporation for bullet resistant vests (Special)
BL2001-883	Approves grant for COPS in schools program (Special)
BL2001-884	Approves facility use agreement for housing of a childcare center (Special)
BL2001-885	Authorizes participation in projects 97-WG-66B-2 and 01-WL-132 (Special)
BL2001-886	Authorizes participation in projects 01-SL-100, 100A, 100B and 100C (Special)
BL2001-887	Authorizes acceptance of cash donations (Special)
BL2001-888	(Withdrawn)
BL2001-889	(Withdrawn)
BL2001-890	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends language in § 1 of Ord. 2001-890 (Special)
BL2001-891	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends language in § 1 of Ord. 2001-891 (Special)
BL2001-892	(Withdrawn)
BL2001-893	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends language in § 1 of Ord. 2001-893 (Special)
BL2001-894	(Defeated)
BL2001-895	Rezone (Special)
BL2001-896	Rezone (Special)

Ordinance Number	Disposition
BL2001-897	Rezone (Special)
BL2001-898	Rezone (Special)
BL2001-899	Rezone (Special)
BL2001-900	Rezone (Special)
BL2001-901	Rezone (Special)
Amdt. 1	Amends plan in § 1 of Ord. 2001-901 (Special)
BL2001-902	Rezone (Special)
BL2001-903	Rezone (Special)
BL2001-904	Rezone (Special)
Amdt. 1	Amends language in § 1 and sketch of Ord. 2001-904 (Special)
BL2001-905	(Withdrawn)
BL2001-906	Rezone (Special)
BL2001-907	Rezone (Special)
BL2001-908	Rezone (Special)
BL2001-909	Rezone (Special)
BL2001-910	Rezone (Special)
BL2001-911	Rezone (Special)
BL2001-912	Rezone (Special)
BL2001-913	(Withdrawn)
BL2001-914	(Withdrawn)
BL2001-915	(Withdrawn)
BL2001-916	Adopts official street and alley acceptance and maintenance map (Special)
BL2001-917	Accepts donation from Vastland Realty Group for intersection improvements (Special)
BL2001-918	Authorizes grant of easements for use in the greenway system (Special)
BL2001-919	Approves grant for the treatment of the mentally ill and drug abusers processed through the drug court (Special)
BL2001-920	Approves contract for the Emergency Communications District (Special)
BL2001-921	Approves certain agreements for the construction and operation of a new district heating and cooling plant and energy distribution system (Special)
Amdt. 1	Amends Exh. F of Ord. 2001-921 (Special)
Amdt. 2	Amends Exh. B in § 2 of Ord. 2001-921 (Special)
BL2001-922	Amends Charter, Appendix 2, redistricting the Councilmanic districts and revising the school districts (Charter, App. 2)
BL2001-923	Rezone (Special)
BL2001-924	Cancels portion of the commercial planned unit development district (Special)
BL2001-925	Amends § 10.20.120(A), collection requirements (10.20)
Amdt. 1	Amends language in § 1 of Ord. 2001-925 (10.20)
BL2001-926	Authorizes the acceptance of certain property (Special)
BL2001-927	Approves grant for funds to support library services (Special)
BL2001-928	Authorizes the acquisition of property (Special)
BL2001-929	Abandons sewer line and easement (Special)
BL2001-930	Abandons sewer line and easement (Special)
BL2002-931	(Substitute bill) Adds Article V and § 10.20.500, annual reports (10.20)
BL2002-932	Approves participation in the Insurance Trust Plan (Special)
BL2002-933	Accepts easement on a parcel of property for use in the greenway system (Special)
BL2002-934	Authorizes acceptance of Contract No. 2001583 (Special)
BL2002-935	Authorizes acceptance of Contract No. 2001639 (Special)
BL2002-936	Accepts grant agreement for Juvenile Accountability Incentive Block Grant Program Services (Special)
BL2002-937	Approves a grant from the Alcohol and Drug Council of Middle Tennessee, Inc. (Special)
BL2002-938	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends language in § 1 of Ord. 2002-938 (Special)
BL2002-939	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends language in § 1 of Ord. 2002-938 (Special)
BL2002-940	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends language in § 1 of Ord. 2002-938 (Special)
BL2002-941	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends language in § 1 of Ord. 2002-938 (Special)
Amdt. 2	Amends language in § 1 of Ord. 2002-938 (Special)
BL2002-942	(Substitute bill) Amends Official Street and Alley Acceptance and Maintenance Map (Special)
BL2002-943	(Withdrawn)
BL2002-944	Authorizes participation with CENTEX for construction of project 99-SL-206A and 97-SG-84 (Special)
BL2002-945	Authorizes acceptance of Contract No. 2001659 (Special)
BL2002-946	(Withdrawn)
BL2002-947	(Withdrawn)
BL2002-948	Readopts code (1.01)

Ordinance Number	Disposition
BL2002-949	Amends § 3 of Ord. 92-210 by changing June 30, 2002 to December 31, 2002 (Special)
BL2002-950	Approves amendment to Contract No. 12689 (Special)
BL2002-951	Amends official street and alley acceptance and maintenance map (Special)
BL2002-952	Amends official street and alley acceptance and maintenance map (Special)
BL2002-953	Amends official street and alley acceptance and maintenance map (Special)
BL2002-954	Amends official street and alley acceptance and maintenance map (Special)
BL2002-955	Amends official street and alley acceptance and maintenance map (Special)
BL2002-956	Amends Lenox Village urban design overlay district (Special)
BL2002-957	(Withdrawn)
BL2002-958	Rezone (Special)
BL2002-959	(Failed)
BL2002-960	(Failed)
BL2002-961	Rezone (Special)
BL2002-962	Rezone (Special)
BL2002-963	(Withdrawn)
BL2002-964	Amends preliminary plan of the planned unit development district (Special)
Amdt. 1	Amends Exh. A of § 1 of Ord. BL2002-964 (Special)
BL2002-965	Rezone (Special)
BL2002-966	(Withdrawn)
BL2002-967	(Withdrawn)
BL2002-968	Amends certain commercial planned unit development district (Special)
BL2002-969	Amends § 17.32.040, exempt signs (17.32)
Amdt. 1	Amends § 1 of Ord. BL2002-969 (17.32)
BL2002-970	(Withdrawn)
BL2002-971	(Withdrawn)
BL2002-972	Rezone (Special)
BL2002-973	Amends official street and alley acceptance and maintenance map (Special)
BL2002-974	Approves contract with Vanderbilt Child and Family Center for services to develop the Council Afterschool Initiative (Special)
BL	2002-975 (Failed)
BL2002-976	Authorizes acceptance of certain property and alley abandonment (Special)
BL	2002-977 Authorizes acquisition of property (Special)
BL2002-978	Authorizes Nashville Data Link, Inc. to construct, install, and maintain fiber optic cable within Davidson County Tennessee (Special)
BL2002-979	Amends official street and alley acceptance and maintenance map (Special)
BL2002-980	Amends official street and alley acceptance and maintenance map (Special)
BL2002-981	Rezone (Special)
BL2002-982	Rezone (Special)
BL2002-983	Amends § 13.08.030, streets, alleys and sidewalks (13.08)
BL2002-984	Amends §§ 7.08.010 and 7.08.100, beer and alcoholic beverages of less than five percent (7.08)
BL2002-985	(Failed)
BL2002-986	Approves grant from the U.S. Department of Justice (Special)
BL2002-987	Approves grant from Governor's Highway Safety Office (Special)
BL2002-988	Authorizes acquisition of certain property (Special)
BL2002-989	Authorizes acceptance of Contract No. 2001602 (Special)
BL2002-990	Approves Amendment No. One to lease agreement approved by Bill No. 098-1435 (Special)
BL2002-991	Approves lease agreement for Pearl Sims Learning and Development Center (Special)
BL2002-992	Authorizes AmSouth Band and 2000 PBL Venture, Ltd. to construct install, and maintain ground and aerial encroachments (Special)
BL2002-993	Rezone (Special)
BL2002-994	Rezone (Special)
BL2002-995	Rezone (Special)
BL2002-996	Rezone (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2002-996 (Special)
Amdt. 2	Adds § 4 to Ord. BL2002-996 (Special)
BL2002-997	Rezone (Special)
BL2002-998	Rezone (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2002-998 (Special)
BL2002-999	Rezone (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2002-999 (Special)
BL2002-1000	Amends portion of the commercial planned unit development district (Special)
BL2002-1001	Amends portion of the commercial planned unit development district (Special)
BL2002-1002	Rezone (Special)
BL2002-1003	Amends portion of the commercial planned unit development district (Special)
BL2002-1004	(Failed)
BL2002-1005	Rezone (Special)
BL2002-1006	Rezone (Special)
BL2002-1007	Rezone (Special)
BL2002-1008	Rezone (Special)

Ordinance Number	Disposition
BL2002-1009	Amends § 17.04.060, definitions of general terms (17.04)
BL2002-1010	(Substitute bill) Amends Table 17.12.020(A) single-family and two-family dwellings (17.12)
BL2002-1011	Amends Table 17.08.030(D) and § 17.16.030(D), zoning (17.08, 17.16)
BL2002-1012	Amends § 17.12.030(C), street setbacks (17.12)
Amdt. 1	Amends § 17.12.030(C) of § 1 of Ord. 2002-1012, street setbacks (17.12)
BL2002-1013	Amends Table 17.12.030(A), street setbacks (17.12)
BL2002-1014	Amends § 17.12.035, district bulk regulations (Repealed by BL2004-221)
BL2002-1015	Amends §§ 17.12.040 and 17.12.050, district bulk regulations (17.12)
BL2002-1016	Amends Table 17.20.030, parking requirements (17.20)
BL2002-1017	Amends § 17.20.040, adjustments to required parking (17.20)
BL2002-1018	(Withdrawn)
BL2002-1019	Amends § 17.20.080(C), off-site parking (17.20)
BL2002-1020	Amends § 17.24.190, exemptions (17.24)
BL2002-1021	(Substitute bill) Amends § 17.28.040, floodplain/floodway development standards (17.28)
Amdt. 1	Replaces certain language in § 1 of Ord. BL2002-1021
BL2002-1022	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1023	Amends § 10.28.010, excessive growth and accumulation prohibited (10.28)
Amdt. 1	Amends certain language in § 1 of BL2002-1023 (10.28)
BL2002-1024	Amends § 2.24.250, disposition of surplus property (2.24)
BL2002-1025	Readopts code (1.01)
BL2002-1026	Approves grant for Governor's Highway Safety Program (Special)
BL2002-1027	Accepts grant for the provision of pass-through funding to subsidize emergency management (Special)
BL2002-1028	Approves grant for 2001-2002 Litter Grant Program (Special)
BL2002-1029	Accepts grant from the City Parks Forum for a master plan for Bell's Bend Park (Special)
Amdt. 1	Amends certain language in § 2 of Ord. BL2002-1029 (Special)
BL2002-1030	Approves lease space to Lamar Advertising company (Special)
BL2002-1031	Accepts donation from RTR Transportation Company for the Drug Court program (Special)
BL2002-1032	Limits motor vehicle traffic on a portion of Otter Creek Road (Special)
BL2002-1033	Approves Amdt. No. 6 to the Capitol Mall Redevelopment Project Plan (Special)
BL2002-1034	Rezone (Special)
BL2002-1035	Rezone (Special)
BL2002-1036	Rezone (Special)
BL2002-1037	Rezone (Special)
BL2002-1038	Rezone (Special)
BL2002-1039	Authorizes transfer of administrative support for the Caring for Children's Program from the Metropolitan Commission to the Department of Finance (Special)
BL2002-1040	Approves lease agreement between Neal and Oleta Shipper for certain premises (Special)
BL2002-1041	Authorizes participation with C.K. Development for construction of Project No. 01-SL-131 (Special)
BL2002-1042	Approves grant from the United States Environmental Protection Agency (Special)
BL2002-1043	Authorizes acquisition of property for Project No. 99-WG-198 (Special)
BL2002-1044	Authorizes acquisition of property for Project No. 01-SG-165 (Special)
BL2002-1045	Approved donation form the Tennessee Department of Transportation for the Richland Greenway project (Special)
BL2002-1046	Approved donation form the Tennessee Department of Transportation for the Whites Creek Greenway project (Special)
BL2002-1047	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1048	(Withdrawn)
BL2002-1049	Amends Ch. 5.12, hotel occupancy privilege tax (5.12)
BL2002-1050	Authorizes transfer of certain property and repeals Ord. 98-1278 (Special)
BL2002-1051	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1052	Amends § 16.24.330, exterior property areas (16.24)
Amdt. 1	Amends § 1 of Ord. BL2002-1052 by adding certain language (16.24)
BL2002-1053	Authorizes acquisition of property for Project No. 94-R-3 (Special)
BL2002-1054	Abandons sewer line and easement (Special)
BL2002-1055	Abandoning and relocating sewer line and easement (Special)

Ordinance Number	Disposition
BL2002-1056	Authorizes acquisition of property for Project No. 01-SG-89 and 01-WG-63 (Special)
BL2002-1057	Authorizes acquisition of property for Project No. 01-SG-156 (Special)
BL2002-1058	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1059	Authorizes participation with John Ring, Tennessee Contractors, Inc. for Project No. 99-SL-200 (Special)
BL2002-1060	Adds Ch. 3.30, plan qualification (3.30)
BL2002-1061	Amends § 11.12.070, excessive noise (11.12)
BL2002-1062	Adopts capital improvements budget and program 2002-2003 through 2007-2008 for FY 2002-2003 (Special)
BL2002-1063	Approves Amdt. No. 2 to the Arts Center Redevelopment Plan (Special)
BL2002-1064	Amends § 2.174.090, district management corporation (2.174)
BL2002-1065	Approves grant for the Gang Resistance Education and Training program (Special)
BL2002-1066	(Substitute bill) Grants consent for change of television franchise and system control (Special)
BL2002-1067	Approves lease space for the Office of the Metropolitan Public Defender (Special)
BL2002-1068	Authorizes acquisition of property for Project No. 99-SG-169 and 99-WG-158 (Special)
BL2002-1069	Authorizes acquisition of property for Project No. 01-WG-145 (Special)
BL2002-1070	Abandons water line and easement (Special)
BL2002-1071	Amends § 12.08.210, abandoned vehicles (12.08)
BL2002-1072	Readopts code (1.01)
BL2002-1073	(Substitute bill) 2002-2003 budget ordinance (Special)
BL2002-1074	Establishes tax levy and declares annual operating budget of the Urban Services District (Special)
BL2002-1075	Adds Ch. 12.54, Horse-Drawn Carriages (12.54)
Amdt. 1	Amends certain language of BL2002-1075 (12.54)
Amdt. 2	Amends Section 1 by deleting Section 9 of Article Three in its entirety and renumbering the remaining sections of Article Three accordingly (Special)
BL2002-1076	(Withdrawn)
BL2002-1077	Approves grant for certain persons to attend the 2002 NAPC Forum (Special)
BL2002-1078	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1079	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1080	Authorizes Overhill Partners, G.P., to construct, install, and maintain a sign on the public right-of-way where Brooksboro Terrace connects with Murfreesboro Pike (Special)
BL2002-1081	Rezone (Special)
BL2002-1082	Rezone (Special)
BL2002-1083	Rezone (Special)
BL2002-1084	Rezone (Special)
BL2002-1085	Applies Planned Unit Development to certain property (Special)
BL2002-1086	Rezone (Special)
BL2002-1087	Rezone (Special)
BL2002-1088	Cancels certain Planned Unit Development District (Special)
BL2002-1089	Cancels certain Planned Unit Development District (Special)
BL2002-1090	Rezone (Special)
BL2002-1091	Cancels existing undeveloped planned unit development (Special)
BL2002-1092	Applies urban design overlay district to properties to permit mixed-use development (Special)
Amdt. 1	Amends § 2 of Ord. BL2002-1092 (Special)
Amdt. 2	Amends Ord. BL2002-1092 by attaching conditions (Special)
BL2002-1093	Rezone (Special)
BL2002-1094	Rezone (Special)
BL2002-1095	Rezone (Special)
Amdt. 1	Amends certain language of BL2002-1095 (Special)
BL2002-1096	Rezone (Special)
BL2002-1097	Rezone (Special)
BL2002-1098	Rezone (Special)
BL2002-1099	Rezone (Special)
BL2002-1100	Amends certain portion of the preliminary plan for a Residential Planned Unit Development District (Special)
BL2002-1101	(Withdrawn)
BL2002-1102	Rezone (Special)
Amdt. 1	Changes certain zoning classification with another (Special)
BL2002-1103	Rezone (Special)
BL2002-1104	(Withdrawn)
BL2002-1105	Rezone (Special)
BL2002-1106	(Defeated)
BL2002-1107	(Withdrawn)
BL2002-1108	Rezone (Special)
Amdt. 1	Repeals and replaces certain language where it appears in the caption and in § 1 of Ord. BL2002-1108 (Special)
BL2002-1109	Rezone (Special)
BL2002-1110	(Substitute bill) Rezone (Special)

Ordinance Number	Disposition
Amdt. 1	Amends certain language of BL2002-1110 (Special)
BL2002-1111	Rezone (Special)
BL2002-1112	(Withdrawn)
BL2002-1113	Amends certain portion of the Commercial Planned Unit Development District (Special)
BL2002-1114	(Withdrawn)
BL2002-1115	Approves development of low-rent scattered housing (Special)
Amdt. 1	Amends certain language of Ord. BL2002-1115 (Special)
BL2002-1116	(Withdrawn)
BL2002-1117	Approves grant for the purchase of equipment to upgrade the Automated Electoral System (Special)
BL2002-1118	Authorizes grant of an easement with Kohl's Department Stores, Inc., on a parcel of property for use in the Stones River greenway system (Special)
BL2002-1119	Accepts easement from Belmont University with a provision to abandon the sewer line in the future for Project No. 99-SG-244 (Special)
BL2002-1120	Authorizes certain improvements within the public right-of-way at the Tennessee Performing Arts Center (Special)
BL2002-1121	Authorizes the Metropolitan Government to enter into an agreement with CPS Land, LLC, and CSX Transportation, Inc. (Special)
BL2002-1122	Amends § 10.32.160, removing stagnant water (10.32)
Amdt. 1	Amends certain language of BL2002-1122 (10.32)
BL2002-1123	Approves acceptance of paperless, electronic law enforcement block grant from the U.S. Department of Justice (Special)
Amdt. 1	Amends BL2002-1123 by attaching a hard copy of the completed electronic grant application for the Fiscal Year 2002 Local Law Enforcement Block Grants Program to the ordinance as Exhibit A. (Special)
BL2002-1124	Abandons sewer line and easement (Special)
BL2002-1125	Abandons sewer line and easement (Special)
BL2002-1126	Rezone (Special)
BL2002-1127	Adds Ch. 12.69, cruising on public streets (12.69)
BL2002-1128	Amends § 12.08.210, abandoned vehicles (12.08)
BL2002-1129	Approves grant for the Bulletproof Vest Partnership grant (Special)
BL2002-1130	Readopts code (1.01)
BL2002-1131	Authorizes lease agreement for certain property for use as a public park (Special)
BL2002-1132	(Substitute bill) Approves easements on certain parcels of real property for construction of the Gateway Boulevard project (Special)
BL2002-1133	Authorizes acquisition of property for Project No. 01-SG-91, 01-WG-88, 01-SG-92 and 01-WG-89 (Special)
BL2002-1134	Establishes program to provide assistance to low-income elderly residents for fiscal year 2002-2003 (Special)
BL2002-1135	(Withdrawn)
BL2002-1136	Authorizes mayor to secure wastewater grants and loans (Special)
Amdt. 1	Amends § 2 or Ord. BL2002-1136 by adding certain language (Special)
BL2002-1137	Approves grant for Community Gun Violence Prosecution Program (Special)
BL2002-1138	Authorizes the Metropolitan Government to enter into Utility Relocation Contract No. 5871. (Special)
BL2002-1139	Approves grant for the Urban and Community Forestry Grant Assistance Program (Special)
BL2002-1140	Authorizes mayor to execute license agreement with American Society of Composers (Special)
BL2002-1141	Authorizes acquisition for property in connection with Project No. 01-SG-86A (Special)
BL2002-1142	Adds §§ 10.64.012, 10.64.017, fire prevention code, and 16.28.152, 16.28.154, 16.28.156, building permits; amends §§ 2.20.040, 2.28.130, 2.28.140, 2.28.160, 2.28.170, 2.28.180, 2.28.210, administration, and 10.64.010, 10.64.015, health and safety, and 16.08.010, 16.08.012, 16.08.016, 16.12.120, 16.12.130, 16.16.190, 16.16.240, 16.16.260, 16.28.150, 16.28.170 and 16.48.010, buildings and construction; repeals §§ 2.28.190, 2.28.200, administration and 16.16.200, 16.16.210, 16.16.220, 16.52.080 and 16.52.090, buildings and construction (2.20, 2.28, 10.64, 16.08, 16.12, 16.16, 16.28, 16.48, 16.52)
BL2002-1143	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1144	Rezone (Special)
BL2002-1145	Rezone (Special)
BL2002-1146	(Withdrawn)
BL2002-1147	(Withdrawn)
BL2002-1148	Rezone (Special)

Ordinance Number	Disposition
BL2002-1149	(Withdrawn)
BL2002-1150	Amends official zoning map (Special)
BL2002-1151	Amends official zoning map (Special)
BL2002-1152	Amends official zoning map (Special)
BL2002-1153	Amends official zoning map (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2002-1153 (Special)
BL2002-1154	Amends official zoning map (Special)
BL2002-1155	Amends official zoning map (Special)
Amdt. 1	Adds Exh. 1 to § 1 and deletes § 4 of Ord. BL2002-1155 (Special)
BL2002-1156	Amends official zoning map (Special)
BL2002-1157	(Withdrawn)
BL2002-1158	Amends official zoning map (Special)
BL2002-1159	(Withdrawn)
BL2002-1160	Amends official zoning map (Special)
BL2002-1161	Amends official zoning map (Special)
BL2002-1162	Amends § 7.08.090, location restrictions (7.08)
BL2002-1163	Approves lease agreement for certain real property (Special)
BL2002-1164	Authorizes mayor to secure grants or loans from certain agencies (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2002-1164 (Special)
BL2002-1165	Approves grant for divorce education and mediation project (Special)
BL2002-1166	Authorizes acquisition of property for Project No. 02-SW-10 (Special)
BL2002-1167	Amends §§ 15.16.240, 15.16.260, 15.16.270 and 15.16.290, water mains, service connections and meters (15.16)
BL2002-1168	Authorizes construction of Project No. 02-SL-22 (Special)
BL2002-1169	Approves lease agreement for certain real property (Special)
BL2002-1170	Abandons portion of easements and drainage system for certain projects (Special)
Amdt. 1	Adds new § 3; amends certain language in § 1; repeals and replaces § 2 of Ord. BL2002-1170 (Special)
BL2002-1171	Amends §§ 17.04.060(B), 17.16.040(A)(2), 17.16.110(A)(2), 17.16.110(B)(3), 17.16.210(A)(1), 17.16.210(B)(2) and 17.16.210(C)(3), zoning (17.04, 17.16)
Amdt. 1	Adds certain language to § 9 of Ord. BL2002-1171; amends certain language in § 6 and the third and fourth recitals of Ord. BL2002-1171; repeals and replaces § 8 and certain term throughout Ord. BL2002-1171 (17.04, 17.16)
Amdt. 2	Adds new § 9 to Ord. BL2002-1171; amends certain language from renumbered §§ 6 and 7 of Ord. BL2002-1171; repeals § 5 and renumbers remaining sections of Ord. BL2002-1171 (17.04, 17.16)
BL2002-1172	Approves lease agreement for certain parcel of property (Special)
BL2002-1173	Authorizes donation for the Police Department's Victim Intervention Program (Special)
BL2002-1174	Authorizes donation of Abduction Central Alert software program (Special)
BL2002-1175	Authorizes police department to receive the Lost Child Alert Technology Resource from the National Center for Missing and Exploited Children (Special)
BL2002-1176	Authorizes grant to purchase personal protective and detection equipment for emergency first responders in case of a weapon of mass destruction incident (Special)
BL2002-1177	Approves agreement for reimbursement of funds expended for litter pickup (Special)
BL2002-1178	Abandons sewer drainage easement (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2002-1178 (Special)
BL2002-1179	Abandonment and relocation of various public utility, drainage, water and sewer line easements (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2002-1179 (Special)
BL2002-1180	Extends certain boundaries of the Urban Services District (Special)
BL2002-1181	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1182	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1183	Authorizes certain construction project (Special)
BL2002-1184	(Withdrawn)
BL2002-1185	(Withdrawn)
BL2002-1186	Adds § 2.04.050
BL2002-1187	Approves contract concerning management of parking facilities (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2002-1187 (Special)
BL2002-1188	Approves grant for the major drug enforcement program (Special)
BL2002-1189	Approves grant for Title IV-D child support services (Special)
BL2002-1190	Approves grant for training of probation officers (Special)
BL2002-1191	Accepts donation for use in Victim's Intervention Program (Special)

Ordinance Number	Disposition
BL2002-1192	Authorizes the Metropolitan Police Department to donate police canines and horses to qualified officers, law enforcement agencies, and/or not-for-profit organizations (Special)
BL2002-1193	Approves agreement relating to a certain parcel of property (Special)
BL2002-1194	Authorizes acquisition of certain property (Special)
BL2002-1195	Authorizes acquisition of certain property (Special)
BL2002-1196	Authorizes acquisition of certain property (Special)
BL2002-1197	Authorizes acceptance of an easement from the Corps of Engineers (Special)
Amdt. 1	Amends certain language in § 2 of Ord. BL2002-1197 (Special)
BL2002-1198	Approves disposition for certain parcels of property (Special)
BL2002-1199	Authorizes certain construction projects (Special)
BL2002-1200	Authorizes acceptance of an easement from the Corps of Engineers (Special)
BL2002-1201	Abandonment and relocation of certain portion of sewer line and easement (Special)
BL2002-1202	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1203	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers remaining sections accordingly in Ord. BL2002-1203 (Special)
BL2002-1204	(Withdrawn)
BL2002-1205	Amends official zoning map (Special)
BL2002-1206	(Withdrawn)
BL2002-1207	(Withdrawn)
BL2002-1208	Approves redirection of certain income for the Sam Levy HOPE VI affordable housing program (Special)
BL2002-1209	Adopts property identification maps (Special)
BL2002-1210	Approves certain lease agreement (Special)
Amdt. 1	Amends certain language in § 2 of Ord. BL2002-1210 (Special)
BL2002-1211	Approves certain lease agreement (Special)
Amdt. 1	Amends certain language in § 2 of Ord. BL2002-1211 (Special)
BL2002-1212	Approves certain lease agreement (Special)
Amdt. 1	Amends certain language in § 2 of Ord. BL2002-1212(Special)
BL2002-1213	Approves grant for child and family intervention (Special)
BL2002-1214	Authorizes conveyance of interest concerning certain real property (Special)
BL2002-1215	Authorizes acquisition of certain property for use in certain projects (Special)
BL2002-1216	Authorizes public sewer service in certain areas (Special)
Amdt. 1	Deletes § 4 of Ord. BL2002-1216 and renumbers remaining sections accordingly (Special)
BL2002-1217	Abandons certain water pumping station (Special)
BL2002-1218	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends certain language in § 2 of Ord. BL2002-1218 (Special)
BL2002-1219	Abandons certain public utility and sewer easement (Special)
BL2002-1220	Amends official zoning map (Special)
BL2002-1221	Amends official zoning map (Special)
BL2002-1222	Amends official zoning map (Special)
BL2002-1223	Amends official zoning map (Special)
BL2002-1224	Amends official zoning map (Special)
BL2002-1225	Amends official zoning map (Special)
BL2002-1226	(Second substitute bill) Amends §§ 17.08.030 and 17.16.220, zoning (17.08, 17.16)
BL2002-1227	Amends official zoning map (Special)
BL2002-1228	Amends official zoning map (Special)
BL2002-1229	Amends official zoning map (Special)
BL2002-1230	Authorizes mayor to submit annual update to U.S. Department of Housing and Urban Development (Special)
BL2002-1231	Approves grant for general operating expenses for the Nashville Arts Commission (Special)
BL2002-1232	Adds § 4.04.060; amends §§ 4.04.050, 4.04.060, 4.08.040(C)(6), 4.08.050(B), 4.12.010, 4.16.030, 4.32.050 and 4.40.050(B), procurement (4.04, 4.08, 4.12, 4.16, 4.32, 4.40)
BL2002-1233	Amends § 3.28.050 and 3.29.050, personnel (3.28, 3.29)
BL2002-1234	Adds § 3.40.035, deferred retirement option plan (3.40)
BL2002-1235	Amends § 3.24.010, medical care benefits (3.24)
BL2002-1236	Creates certain work-related positions (Special)
BL2002-1237	Creates certain work-related positions (Special)
BL2002-1238	Accepts donation from the Dodge Division of the Daimler-Chrysler Corporation (Special)

Ordinance Number	Disposition
BL2002-1239	Approves donation of certain surplus cellular telephones for various not-for-profit domestic violence organizations (Special)
BL2002-1240	Reduces certain public utility drainage and storm pipe easement (Special)
BL2002-1241	Authorizes Cook's Pest Control to maintain termite protection for designated area (Special)
BL2002-1242	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1243	Rezone (Special)
BL2002-1244	Approves lease agreement for certain parcels of property to be used as trailhead for the Stones River Greenway (Special)
BL2002-1245	Approves disposition of a certain parcel of property (Special)
BL2002-1246	Amends § 12.44.010, parking meter zones (Expired)
Amdt. 1	Adds § 3 and repeals and replaces § 2 of Ord. BL2002-1246 (Expired)
BL2002-1247	(Withdrawn)
BL2002-1248	Adopts official street and alley acceptance and maintenance map (Special)
BL2002-1249	Abandons certain sewer line and easement (Special)
BL2002-1250	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1251	Rezone (Special)
BL2002-1252	(Withdrawn)
BL2002-1253	Rezone (Special)
BL2002-1254	Rezone (Special)
BL2002-1255	Rezone (Special)
BL2002-1256	Rezone (Special)
BL2002-1257	Amends certain portion of the Planned Unit Development District (Special)
BL2002-1258	Rezone (Special)
BL2002-1259	Rezone (Special)
BL2002-1260	Rezone (Special)
BL2002-1261	Rezone (Special)
BL2002-1262	Rezone (Special)
BL2002-1263	Rezone (Special)
BL2002-1264	Rezone (Special)
BL2002-1265	Rezone (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2002-1265 (Special)
BL2002-1266	Amends certain portion of the Planned Unit Development District (Special)
BL2002-1267	(Withdrawn)
BL2002-1268	(Withdrawn)
BL2002-1269	(Withdrawn)
BL2002-1270	(Withdrawn)
BL2002-1271	Rezone (Special)
BL2002-1272	Rezone (Special)
BL2002-1273	Amends §§ 17.04.060(B), 17.16.040(A)(2), 17.16.110(A)(2), 17.16.110(B)(3), 17.16.120, 17.16.210(A)(1), 17.16.210(B)(2) and 17.16.210(C)(3), zoning (17.04, 17.16)
Amdt. 1	Adds new § 9 to Ord. BL2002-1273; repeals § 5 and renumbers remaining sections; repeals and replaces renumbered § 8 of Ord. BL2002-1273 (17.04, 17.16)
BL2002-1274	(Withdrawn)
BL2002-1275	Authorizes certain cash donations (Special)
BL2002-1276	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1277	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1278	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1279	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1280	Approves disposition of a certain parcel of property (Special)
Amdt. 1	Amends certain language in § 3 of Ord. BL2002-1280 (Special)
BL2002-1281	Approves disposition of a certain parcel of property (Special)
BL2002-1282	Authorizes the Director of Public Property to accept ownership of certain part of Tax Map 148 (Special)
BL2002-1283	Authorizes Meharry Medical College to construct, install and maintain voice and data communication cables for certain designated area (Special)
BL2002-1284	Authorizes certain building encroachment (Special)
BL2002-1285	(Withdrawn)
BL2002-1286	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1287	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1288	Abandons certain public utility easement (Special)
Amdt. 1	Amends Ord. BL2002-1288 by deleting certain language (Special)
Amdt. 2	Amends Ord. BL2002-1288 by deleting § 3 (Special)
BL2002-1289	Amends official street and alley acceptance and maintenance map (Special)
BL2002-1290	Authorizes Nashville Enterprises, Inc. to maintain existing building encroachment (Special)
BL2002-1291	Authorizes metropolitan government to participate in relocation of combined sewer (Special)
Amdt. 1	Repeals and replaces § 3 of Ord. BL2002-1291 (Special)

Ordinance Number	Disposition
BL2002-1292	Approves certain lease agreement (Special)
Amdt. 1	Repeals and replaces certain language where it appears in Ord. BL2002-1292 (Special)
BL2002-1293	Approves certain lease agreement (Special)
Amdt. 1	Repeals and replaces certain language where it appears in Ord. BL2002-1293 (Special)
BL2002-1294	Approves certain lease agreement (Special)
BL2002-1295	Approves certain lease agreement (Special)
BL2003-1296	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1297	(Withdrawn)
BL2003-1298	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1299	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1300	Authorizes certain sidewalk construction (Special)
Amdt. 1	Adds § 11 and repeals and replaces § 10 of Ord. BL2002[3]-1300 (Special)
BL2003-1301	Authorizes certain donation for the Metropolitan Police Department (Special)
BL2003-1302	Readopts code (1.01)
BL2003-1303	Rezone (Special)
BL2003-1304	Amends §§ 17.16.080 and 17.16.180, land use development standards (17.16)
BL2003-1305	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1306	Authorizes certain donation to the Metropolitan Fire Department (Special)
BL2003-1307	Approves certain contract services between the metropolitan government and the Emergency Communications District (Special)
BL2003-1308	Authorizes the metropolitan government to participate with Pulte Home Tennessee Limited Partnership to provide public sewer service (Special)
BL2003-1309	Approves lease agreement for certain real property (Special)
BL2003-1310	Approves lease agreement for certain real property (Special)
BL2003-1311	(Withdrawn)
BL2003-1312	Amends §§ 11.20.010—11.20.090, fair employment and housing practices (11.20)
Amdt. 1	Deletes § 11.20.080 in § 1 of Ord. BL2003-1312 (11.20)
BL2003-1313	(Withdrawn)
BL2003-1314	Amends Ord. BL2002-974 by extending the termination date of the Council's Taskforce on Afterschool Time and Youth Success from December 31, 2002 until June 30, 2003 (Special)
BL2003-1315	Rezone (Special)
BL2003-1316	Rezone (Special)
BL2003-1317	Rezone (Special)
Amdt. 1	Amends certain language in caption and § 1 of Ord. BL2003-1317 (Special)
BL2003-1318	Rezone (Special)
BL2003-1319	Rezone (Special)
BL2003-1320	Rezone (Special)
BL2003-1321	Rezone (Special)
BL2003-1322	Rezone (Special)
BL2003-1323	Rezone (Special)
BL2003-1324	Rezone (Special)
BL2003-1325	Rezone (Special)
BL2003-1326	Rezone (Special)
BL2003-1327	Rezone (Special)
BL2003-1328	Rezone (Special)
BL2003-1329	Rezone (Special)
BL2003-1330	Rezone (Special)
BL2003-1331	Rezone (Special)
Amdt. 1	Adds certain language to Ord. BL2003-1331 (Special)
BL2003-1332	Rezone (Special)
Amdt. 1	Amends certain language of Ord. BL2003-1332 (Special)
BL2003-1333	(Withdrawn)
BL2003-1334	(Substitute bill) Rezone (Special)
BL2003-1335	Rezone (Special)
Amdt. 1	Repeals and replaces certain language where it appears in the caption and in § 1 of Ord. BL2003-1335 (Special)
BL2003-1336	(Withdrawn)
BL2003-1337	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1338	Readopts code (1.01)
BL2003-1339	Authorizes license agreement with SESAC, Inc., relating to use of musical compositions (Special)
BL2003-1340	Authorizes license agreement with Broadcast Music, Inc., relating to use of musical compositions (Special)
BL2003-1341	Authorizes police department to accept Tennessee Walking Horse donation (Special)
BL2003-1342	(Failed)
BL2003-1343	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1344	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1345	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1346	Amends §§ 17.08.030, 17.16.110 and 17.16.210, zoning (17.08, 17.16)
BL2003-1347	Amends § 3.08.010, general definitions (3.08)
BL2003-1348	Authorizes construction of certain project (Special)

Ordinance Number	Disposition
BL2003-1349	Authorizes agreement permitting students from Volunteer State Community College to participate in a clinical experience with EMS (Special)
BL2003-1350	Approves facility use agreement for housing of a childcare center (Special)
BL2003-1351	Authorizes participation with Project No. 02-SG-154 (Special)
BL2003-1352	(Withdrawn)
BL2003-1353	(Substitute bill) Amends § 7.08.090, sale of alcoholic beverages (7.08)
BL2003-1354	(Failed)
BL2003-1355	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1356	(Failed)
BL2003-1357	Rezone (Special)
BL2003-1358	Rezone (Special)
BL2003-1359	Rezone (Special)
BL2003-1360	Authorizes certain building encroachment (Special)
Amdt. 1	Amends certain language where it appears in Ord. BL2003-1360 (Special)
BL2003-1361	Authorizes Director of the Metropolitan Department of Water and Sewerage Services to enter into agreement with the Tennessee Department of Transportation (Special)
BL2003-1362	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1363	Amends § 7.08.140, beer permit holders (7.08)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2003-1363 (7.08)
BL2003-1364	(Withdrawn)
BL2003-1365	Approves agreement for the Mill Creek Watershed Feasibility Study (Special)
BL2003-1366	Rezone (Special)
BL2003-1367	Rezone (Special)
BL2003-1368	(Defeated)
BL2003-1369	Rezone (Special)
BL2003-1370	Rezone (Special)
BL2003-1371	Rezone (Special)
BL2003-1372	Rezone (Special)
BL2003-1373	(Withdrawn)
BL2003-1374	Rezone (Special)
BL2003-1375	(Withdrawn)
BL2003-1376	Rezone (Special)
BL2003-1377	(Withdrawn)
BL2003-1378	Rezone (Special)
BL2003-1379	Rezone (Special)
BL2003-1380	Rezone (Special)
Amdt. 1	Amends certain language of BL2003-1380 (Special)
BL2003-1381	Rezone (Special)
Amdt. 1	Adds new § 4 to Ord. BL2003-1381; amends certain language in § 1 of Ord. BL2003-1381 (Special)
BL2003-1382	Rezone (Special)
BL2003-1383	Rezone (Special)
BL2003-1384	Rezone (Special)
BL2003-1385	Rezone (Special)
BL2003-1386	Amends Green Hills UDO Design Guidelines (Special)
BL2003-1387	(Substitute bill) Adds § 12.42.115, residential permit parking (12.42)
Amdt. 1	Amends certain language in § 1 of BL2003-1387 (12.42)
BL2003-1388	(Withdrawn)
BL2003-1389	Approves release of access restriction of certain property (Special)
BL2003-1390	Approves lease agreement for use of portions of the facilities of the Tennessee Preparatory School (Special)
BL2003-1391	Rezone (Special)
Amdt. 1	Repeals certain language where it appears in Ord. BL2003-1391 (Special)
BL2003-1392	Rezone (Special)
Amdt. 1	Repeals and replaces certain language where it appears in Ord. BL2003-1392 (Special)
BL2003-1393	Rezone (Special)
BL2003-1394	Rezone (Special)
Amdt. 1	Repeals and replaces certain language where it appears in Ord. BL2003-1394 (Special)
BL2003-1395	(Withdrawn)
BL2003-1396	Rezone (Special)
BL2003-1397	Rezone (Special)
BL2003-1398	Rezone (Special)
BL2003-1399	Amends §§ 17.08.030, 17.36.010, 17.36.330, 17.36.340, 17.36.350 and 17.40.140; repeals § 17.08.020(C), zoning (17.08, 17.36, 17.40)
BL2003-1400	(Withdrawn)
BL2003-1401	Authorizes the metropolitan government to enter into Utility Relocation Contract No. 5980 (Special)
BL2003-1402	Abandonment and relocation of water line and easement (Special)
BL2003-1403	Abandons certain sewer line and easement (Special)
BL2003-1404	Abandons certain sewer line and easement (Special)
BL2003-1405	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1406	Readopts code (1.01)
BL2003-1407	Authorizes acquisition of certain property (Special)

Ordinance Number	Disposition
BL2003-1408	Authorizes the Director of Public Property to accept and record easements in favor of the metropolitan government (Special)
BL2003-1409	Abandons driveway easement (Special)
BL2003-1410	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1411	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1412	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Adds certain language to § 2 of Ord. BL2003-1412 (Special)
BL2003-1413	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Adds certain language to § 1 of Ord. BL2003-1413 (Special)
BL2003-1414	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Adds certain language to § 3 of Ord. BL2003-1414 (Special)
BL2003-1415	(Defeated)
BL2003-1416	Rezone (Special)
BL2003-1417	Rezone (Special)
BL2003-1418	Rezone (Special)
BL2003-1419	Rezone (Special)
BL2003-1420	(Withdrawn)
BL2003-1421	Rezone (Special)
BL2003-1422	(Failed)
BL2003-1423	Authorizes the metropolitan government to participate with John Ring Tennessee Contractors, Inc. to provide public sewer service (Special)
BL2003-1424	Authorizes the metropolitan government to participate with the Cheatham County Rail Authority for the construction of Project No. 03-GS-50 (Special)
BL2003-1425	Authorizes the metropolitan government to take over the First Suburban Water Utility District (Special)
BL2003-1426	Abandons water pumping station easement (Special)
BL2003-1427	Authorizes acceptance of donated property (Special)
BL2003-1428	Authorizes condemnation of easement (Special)
BL2003-1429	Approves lease agreement for certain real property (Special)
BL2003-1430	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1431	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1432	Adopts the Capital Improvement Budget and Program 2003-2004 through 2008-2009 (Special)
Amdt. 1	Adds certain language to BL2003-1432 (Special)
Amdt. 2	Adds certain language to BL2003-1432 (Special)
Amdt. 3	Adds certain language to BL2003-1432 (Special)
Amdt. 4	Adds certain language to BL2003-1432 (Special)
Amdt. 5	Adds certain language to BL2003-1432 (Special)
Amdt. 6	Adds certain language to BL2003-1432 (Special)
BL2003-1433	Rezone (Special)
BL2003-1434	Rezone (Special)
BL2003-1435	(Withdrawn)
BL2003-1436	Rezone (Special)
Amdt. 1	Repeals and replaces certain language where it appears in § 1 of Ord. BL2003-1436 (Special)
Amdt. 2	Repeals and replaces certain language where it appears in § 1 of Ord. BL2003-1436 (Special)
BL2003-1437	Rezone (Special)
BL2003-1438	Rezone (Special)
BL2003-1439	Rezone (Special)
BL2003-1440	Rezone (Special)
BL2003-1441	Rezone (Special)
BL2003-1442	Rezone (Special)
Amdt. 1	Repeals and replaces certain language where it appears in § 1 of Ord. BL2003-1442 (Special)
BL2003-1443	Rezone (Special)
BL2003-1444	Rezone (Special)
BL2003-1445	(Defeated)
BL2003-1446	Rezone (Special)
BL2003-1447	Rezone (Special)
BL2003-1448	Rezone (Special)
BL2003-1449	Rezone (Special)
BL2003-1450	(Withdrawn)
BL2003-1451	Rezone (Special)
BL2003-1452	Rezone (Special)
BL2003-1453	(Withdrawn)
BL2003-1454	Rezone (Special)
BL2003-1455	Rezone (Special)
Amdt. 1	Repeals and replaces certain language in § 1 of Ord. BL2003-1455 (Special)
BL2003-1456	(Withdrawn)
BL2003-1457	Rezone (Special)
BL2003-1458	Rezone (Special)
BL2003-1459	(Withdrawn)
BL2003-1460	Rezone (Special)
BL2003-1461	Rezone (Special)
BL2003-1462	Rezone (Special)
BL2003-1463	Rezone (Special)

Ordinance Number	Disposition
Amdt. 1	Repeals and replaces certain language in § 3 of Ord. BL2003-1463 (Special)
BL2003-1464	Amends official zoning map (Special)
BL2003-1465	Amends official zoning map (Special)
Amdt. 1	Repeals and replaces certain language where it appears in § 3 of Ord. BL2003-1465 (Special)
BL2003-1466	(Withdrawn)
BL2003-1467	Amends official zoning map (Special)
BL2003-1468	(Withdrawn)
BL2003-1469	Amends official zoning map (Special)
BL2003-1470	Amends official zoning map (Special)
BL2003-1471	(Substitute bill) Fiscal year 2004 budget (Special)
BL2003-1472	Establishes tax levy in the General District for the fiscal year 2004 (Special)
BL2003-1473	Authorizes acceptance of cash donations to the mayor's Office of Children and Youth (Special)
BL2003-1474	Authorizes acceptance of donated easement (Special)
Amdt. 1	Repeals and replaces certain language where it appears in Ord. BL2003-1474 (Special)
BL2003-1475	(Withdrawn)
BL2003-1476	Amends § 7.08.070, off-sale permit holders (7.08)
BL2003-1477	Abandons water pumping station and authorizes public property to dispose of property (Special)
BL2003-1478	Amends official zoning map (Special)
BL2003-1479	Amends official zoning map (Special)
BL2003-1480	Amends official zoning map (Special)
BL2003-1481	Amends official zoning map (Special)
Amdt. 1	Repeals and replaces certain language where it appears in the caption and in § 1 of Ord. BL2003-1481 (Special)
BL2003-1482	(Defeated)
BL2003-1483	Amends official zoning map (Special)
Amdt. 1	Repeals and replaces certain language where it appears in the caption and in § 1 of Ord. BL2003-1483 (Special)
Amdt. 2	Amends caption and § 1 of Ord. BL2003-1483 (Special)
BL2003-1484	(Withdrawn)
BL2003-1485	(Withdrawn)
BL2003-1486	(Withdrawn)
BL2003-1487	Amends official zoning map (Special)
BL2003-1488	Amends official zoning map (Special)
BL2003-1489	(Withdrawn)
BL2003-1490	Amends official zoning map (Special)
BL2003-1491	Amends official zoning map (Special)
BL2003-1492	Amends official zoning map (Special)
BL2003-1493	Amends official zoning map (Special)
BL2003-1494	Amends official zoning map (Special)
BL2003-1495	Amends official zoning map (Special)
BL2003-1496	Amends official zoning map (Special)
BL2003-1495	Amends official zoning map (Special)
Amdt. 1	Replaces Ridgeway Urban Design Overlay Plan with updated version in Ord. BL2003-1495 (Special)
BL2003-1496	Amends official zoning map (Special)
BL2003-1497	Amends 7.08.040(C)(4), beer permit applicant (7.08)
BL2003-1498	Approves contract between the metropolitan government and Baker, Storey, McDonald Properties, Inc. (Special)
BL2003-1499	Approves grants for permanent sewer easement to Ensworth High School (Special)
BL2003-1500	Authorizes the director or parks and recreation, or his designee, to accept, execute and record and agreement for grant of an easement (Special)
BL2003-1501	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2003-1502	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2003-1503	Approves the disposition of a certain parcel of property (Special)
BL2003-1504	Authorizes the mayor to enter in a fiber optic cable agreement with the Eastern Railroad Corporation (Special)
BL2003-1505	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1506	(Withdrawn)
BL2003-1507	(Withdrawn)
BL2003-1508	(Withdrawn)
BL2003-1509	(Withdrawn)
BL2003-1510	Amends § 10.20.300, private collection permits (10.20)
Amdt. 1	Amends certain language in § 1 of Ord. BL2003-1510 (10.20)
BL2003-1511	Authorizes agreement between the US Department of the Army and the metropolitan government (Special)
BL2003-1512	Approves agreement by and between the metropolitan government and Opry Mills Operating Company (Special)
BL2003-1513	Approves disposition of certain property (Special)
BL2003-1514	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2003-1515	Authorizes conveyance of a slope easement on real property (Special)
BL2003-1516	Authorizes Warner Music Group to construct, install, and maintain a communication duct (Special)
BL2003-1517	Amends official street and alley acceptance and maintenance map (Special)

Ordinance Number	Disposition
BL2003-1518	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1519	Authorizes Parkway Properties, L.P., to construct, install, and maintain various encroachments (Special)
BL2003-1520	Authorizes St. Ann's Episcopal Church to construct, install, and maintain a fence (Special)
BL2003-1521	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1522	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1523	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1524	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Adds certain language in § 3 of Ord.. BL2003-1524 (Special)
BL2003-1525	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1526	Authorizes metropolitan police department to accept the donation of original painting and drawings by local artists for display (Special)
BL2003-1527	Approves emergency fire and ambulance and rescue service at the John C. Tune Airport (Special)
BL2003-1528	Authorizes the metropolitan government to participate with Cooperstone Development to provide sewer services (Special)
BL2003-1529	Approves first amendment to a lease agreement between the metropolitan government and NNN Parkway Towers, LLC (Special)
BL2003-1530	Adds § 5.04.050, acceptance of funds (5.04.050)
BL2003-1531	Authorizes and accepts donation and installation of a certain sculpture (Special)
BL2003-1532	Accepts advance distribution from the estate of David B. Trowbridge to the metropolitan government (Special)
BL2003-1533	Delegates the industrial development board the authority to accept agreements for payments in lieu of ad valorem taxes (Special)
Amdt. 1	Adds new § 5; renumbers old § 5 as new § 6 of Ord. BL2003-1533 (Special)
BL2003-1534	Authorizes acquisition of property for water mains, sanitary sewers, reservoirs, and stormwater easements (Special)
BL2003-1535	Abandonment and relocation of existing water line and easement (Special)
BL2003-1536	Abandonment and relocation of existing sanitary sewer line and easement (Special)
BL2003-1537	Approves easement from Nashville and Eastern Railroad on certain property (Special)
BL2003-1538	Abandonment and relocation of existing sanitary sewer line and easement (Special)
BL2003-1539	Amends official street and alley acceptance and maintenance map (Special)
BL2003-1540	Approves disposition of certain parcels of property (Special)
BL2003-1	(Withdrawn)
BL2003-2	(Withdrawn)
BL2003-3	(Withdrawn)
BL2003-4	(Withdrawn)
BL2003-5	Accepts donations to the Metropolitan Police Department Police Surveillance and Investigative Support Unit (Special)
BL2003-6	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2003-7	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2003-8	(Withdrawn)
BL2003-9	Amends official street and alley acceptance and maintenance map (Special)
BL2003-10	Adds § 10.20.075, transporting used tires (10.20)
BL2003-11	(Withdrawn)
BL2003-12	Abandons sanitary sewer line and easement (Special)
BL2003-13	Abandonment and relocation of existing sanitary sewer line and easement (Special)
BL2003-14	Authorizes mayor to enter into a license agreement with Wal-Mart Stores East LP (Special)
Amdt. 1	Amends certain language where it appears in Ord. BL2003-14 (Special)
BL2003-15	Authorizes mayor to enter into a license agreement with Nashville & Eastern Railroad Corporation (Special)
BL2003-16	Authorizes acceptance of donated property (Special)
BL2003-17	Amends official zoning map (Special)
BL2003-18	Amends official zoning map (Special)
BL2003-19	Amends official zoning map (Special)
BL2003-20	(Failed)
BL2003-21	Amends official zoning map (Special)
BL2003-22	Amends official zoning map (Special)
Amdt. 1	Amends certain language where it appears in Ord. BL2003-22 (Special)
BL2003-23	Amends official zoning map (Special)
BL2003-24	Amends official zoning map (Special)
BL2003-25	(Withdrawn)
BL2003-26	(Withdrawn)
BL2003-27	Amends official zoning map (Special)

Ordinance Number	Disposition
Amdt. 1	Adds certain language to BL2003-27 (Special)
BL2003-28	Amends official zoning map (Special)
BL2003-29	Amends official zoning map (Special)
BL2003-30	Amends official zoning map (Special)
BL2003-31	Adopts property identification maps for the metropolitan government (Special)
BL2003-32	Readopts code (1.01)
BL2003-33	(Withdrawn)
BL2003-34	Authorizes mayor's office to accept cash donations and appropriate sponsorship money (Special)
BL2003-35	Adds §§ 3.30.120 and 3.30.130, plan qualification (Special)
BL2003-36	Amends and extends the license and franchise of Nashville Gas Company (Special)
Amdt. 1	Amends certain language in § 12 of Ord. BL2003-36
BL2003-37	Approves corrected deed conveying certain real property interests to the Nashville & Eastern Railroad Authority (Special)
BL2003-38	Amends § 13.08.040(B)(6)(c), I.D. badges (13.08)
BL2003-39	Amends § 2.20.040, director of codes administration (2.20)
BL2003-40	Readopts code (1.01)
BL2003-41	Establishes program for providing assistance to low-income elderly residents (Special)
BL2003-42	Amends § 2.56.400, justice information services (2.56)
BL2003-43	Approves contract for services performed by the metropolitan government (Special)
BL2003-44	Authorizes RAM Partners, LLC. to construct, install and maintain a sign on the public right-of-way (Special)
BL2003-45	Abandonment and relocation of existing sanitary sewer line and easement (Special)
BL2003-46	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2003-47	Adopts official street and alley acceptance and maintenance map (Special)
BL2003-48	Amends official street and alley acceptance and maintenance map (Special)
BL2003-49	Amends official zoning map (Special)
BL2003-50	Amends official zoning map (Special)
BL2003-51	Amends official zoning map (Special)
BL2003-52	Amends official zoning map (Special)
BL2003-53	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2003-53 (Special)
BL2003-54	Amends official zoning map (Special)
BL2003-55	Amends official zoning map (Special)
BL2003-56	Amends official zoning map (Special)
BL2003-57	Authorizes the Department of Finance to accept donations (Special)
Amdt. 1	Amends certain language where it appears in Ord. BL2003-57 (Special)
BL2003-58	Amends § 3.24.020, medical care benefits (3.24)
BL2003-59	(Withdrawn)
BL2003-60	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2003-61	(Withdrawn)
BL2003-62	(Withdrawn)
BL2003-63	Adopts official street and alley acceptance and maintenance map (Special)
BL2003-64	Authorizes annual update to the consolidation plan (Special)
BL2003-65	(Withdrawn)
BL2003-66	Amends official zoning map (Special)
BL2003-67	Amends official zoning map (Special)
BL2003-68	(Withdrawn)
BL2003-69	Amends official zoning map (Special)
BL2003-70	Amends official zoning map (Special)
BL2003-71	Amends official zoning map (Special)
BL2003-72	Amends official zoning map (Special)
BL2003-73	Amends official zoning map (Special)
BL2003-74	Amends official zoning map (Special)
BL2003-75	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2003-75 (Special)
BL2003-76	Amends official zoning map (Special)
BL2003-77	Amends official zoning map (Special)
Amdt. 1	Amends the plan in § 1; repeals § 3; renumbers § 4 as § 3 of Ord. BL2003-77 (Special)
Amdt. 2	Adds certain language to § 1 of Ord. BL2003-77 (Special)
BL2003-78	Amends official zoning map (Special)
BL2003-79	(Withdrawn)
BL2003-80	(Withdrawn)
BL2003-81	Amends official zoning map (Special)
BL2003-82	Amends official zoning map (Special)
BL2003-83	Amends official zoning map (Special)
BL2003-84	Amends official zoning map (Special)
BL2003-85	Amends official zoning map (Special)
BL2003-86	Amends official zoning map (Special)
BL2003-87	Amends official zoning map (Special)
BL2003-88	Amends official zoning map (Special)
BL2003-89	Amends official zoning map (Special)
BL2003-90	Amends official zoning map (Special)
BL2003-91	Amends official zoning map (Special)
Amdt. 1	Adds certain language to § 3, renumbers § 4 as § 5 and adds new § 4 of Ord. BL2003-91 (Special)
BL2003-92	Amends § 17.08.030; repeals and replace § 17.16.070(J), zoning of restaurants (17.08, 17.16)

Ordinance Number	Disposition
Amdt. 1	Repeals and replaces § 3 of Ord. BL2003-92 (Special)
BL2003-93	(Withdrawn)
BL2003-94	(Withdrawn)
BL2003-95	(Withdrawn)
BL2003-96	Repeals and replaces § 13.24.050, cemetery maintenance (13.24)
BL2003-97	Amends official street and alley acceptance and maintenance map (Special)
BL2003-98	Amends the Metropolitan Code of Laws (Special)
Amdt. 1	Repeals and replaces certain language where it appears in the caption and in § 1 of Ord. BL2003-98 (Special)
BL2003-99	Amends official street and alley acceptance and maintenance map (Special)
BL2003-100	Repeals and replaces §§ 2.56.600 and 2.56.610(A) and (B), pre-trial release program (2.56)
Amdt. 1	Repeals and replaces § 3 of Ord. BL2003-100 (2.56)
BL2003-101	Authorizes metropolitan government to enter into a participation agreement with Beazer Homes Corporation (Special)
BL2003-102	Abandons sewer easement (Special)
BL2003-103	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2003-104	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2003-105	Abandonment and relocation of existing sewer line easement (Special)
BL2003-106	Abandonment and relocation of existing drainage easement (Special)
BL2003-107	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2003-108	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2003-109	Amends official zoning map (Special)
BL2003-110	(Withdrawn)
BL2003-111	Amends official zoning map (Special)
BL2003-112	Amends official zoning map (Special)
BL2003-113	(Withdrawn)
BL2003-114	Approves increase in the basic rate charged by the division of emergency ambulance and rescue service (Special)
Amdt. 1	Repeals certain language where it appears in the sixth recital clause and in § 1 and repeals the fifth recital clause in it entirety of Ord. BL2003-114 (Special)
BL2003-115	Approves practicum affiliation agreement between the metropolitan government, acting through the metropolitan social services commission and the Nashville Sate Technical Community College (Special)
BL2003-116	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2003-117	Authorizes acquisition of property by negotiation or condemnation (Special)
Amdt. 1	Repeals and replaces certain language where it appears in the fifth recital clause of Ord. BL2003-117 (Special)
BL2004-118	Accepts deed of perpetual channel improvement easements (Special)
BL2004-119	Authorizes metropolitan government to accept donations (Special)
BL2004-120	Accepts cash donations and appropriates sponsorship money (Special)
BL2004-121	Amends § 17.40.720, administration and procedures (17.40)
BL2004-122	(Withdrawn)
BL2004-123	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends § 1 and substitutes sketch of Ord. BL2004-123 (Special)
BL2004-124	Authorizes the Historic Edgefield Homeowners Association to construct, install, and maintain street signage on the public right-of-way (Special)
BL2004-125	Names the new North Police Precinct Station (Special)
BL2004-126	(Withdrawn)
BL2004-127	Approves lease agreement between the metropolitan government and the Nashville Academy Theatre (Special)
Amdt. 1	Amends certain language where it appears in Ord. BL2004-127 (Special)
Amdt. 2	Adds an addendum to the lease agreement of Ord. BL2004-127 (Special)
BL2004-128	Amends § 3.30.020, federal requirements for qualified plans (3.30)
BL2004-129	Approves agreement between the metropolitan government and the United States Filter Corporation (Special)
BL2004-130	Authorizes acquisition of property by negotiation or condemnation (Special)
Amdt. 1	Repeals and replaces fifth recital clause of Ord. BL2004-130 (Special)
BL2004-131	Authorizes acquisition of property by negotiation or condemnation (Special)
Amdt. 1	Repeals and replaces fifth recital clause of Ord. BL2004-131 (Special)
BL2004-132	Authorizes metropolitan government to enter into a participation agreement with Richard Argo (Special)
BL2004-133	Authorizes metropolitan government to enter into a participation agreement with Baty Development Group, LLC (Special)

Ordinance Number	Disposition
BL2004-134	Authorizes metropolitan government to enter into a participation agreement with Tiara Development (Special)
BL2004-135	Abandonment and relocation of existing sewer line easement (Special)
BL2004-136	Abandons water and sewer line and easement (Special)
BL2004-137	(Substitute bill) Amends official zoning map (Special)
BL2004-138	Amends official zoning map (Special)
BL2004-139	Amends official zoning map (Special)
Amdt. 1	Repeals and replaces certain language in the caption and § 1 of Ord. BL2004-139 (Special)
BL2004-140	Amends official zoning map (Special)
BL2004-141	Amends official zoning map (Special)
BL2004-142	Amends official zoning map (Special)
BL2004-143	(Withdrawn)
BL2004-144	Amends official zoning map (Special)
BL2004-145	Amends official zoning map (Special)
BL2004-146	Amends official zoning map (Special)
BL2004-147	(Defeated)
BL2004-148	Amends official zoning map (Special)
BL2004-149	Amends official zoning map (Special)
BL2004-150	Amends official zoning map (Special)
BL2004-151	Amends official zoning map (Special)
BL2004-152	Amends official zoning map (Special)
BL2004-153	(Withdrawn)
BL2004-154	Amends official zoning map (Special)
BL2004-155	Amends official zoning map (Special)
BL2004-156	Amends §§ 17.04.060, 17.08.030 and 17.16.110, recycling facilities (17.04, 17.08, 17.16)
BL2004-157	Amends § 6.08.070(C)(1)(c), cable television franchises (6.08)
Amdt. 1	Repeals and replaces certain language in the caption, first recital clause, and in § 1 of Ord. BL2004-157 (Special)
BL2004-158	Grants permanent easement (Special)
BL2004-159	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2004-160	Amends official zoning map (Special)
BL2004-161	Amends official zoning map (Special)
BL2004-162	(Withdrawn)
BL2004-163	((Withdrawn)
BL2004-164	(Withdrawn)
BL2004-165	(Failed)
BL2004-166	(Failed)
BL2004-167	Amends official zoning map (Special)
BL2004-168	(Withdrawn)
BL2004-169	Authorizes metropolitan mayor to execute an amended agreement extending contracts with the city of Goodlettsville (Special)
BL2004-170	Amends § 13.40.040, parking lots, decks and garages (13.40)
BL2004-171	Abandons sewer easement (Special)
BL2004-172	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2004-173	(Withdrawn)
BL2004-174	Authorizes director of public property to accept and record easements (Special)
BL2004-175	(Substitute bill) Amends §§ 16.12.220, 16.16.400, 16.20.250, 16.24.650, 16.28.110, 16.28.120, building and construction (16.12, 16.16, 16.20, 16.24, 16.28)
BL2004-176	Amends official street and alley acceptance and maintenance map (Special)
BL2004-177	Adds § 12.68.210, use of mobile telephones (12.68)
BL2004-178	(Substitute bill) Amends §§ 6.52.020, 6.52.040—6.52.120; repeals and replaces §§ 6.52.010 and 6.52.030, plumbers (6.52)
BL2004-179	(Substitute bill) Amends § 5.16.060, litigation tax (5.16)
BL2004-180	Amends metropolitan employee benefit system
Amdt. 1	Adds certain language in § 1 of Ord. BL2004-180 (Special)
Amdt. 2	Repeals and replaces certain language in § 1 of. Ord. BL2004-180 (Special)
Amdt. 3	Adds certain language in § 1 of Ord. BL2004-180 (Special)
BL2004-181	Approves memorandum agreement the metropolitan government and Davidson community service agency (Special)
BL2004-182	Readopts code (1.01)
BL2004-183	(Withdrawn)
BL2004-184	(Withdrawn)
BL2004-185	Classifies public roads in Davidson County, Tennessee (Special)
BL2004-186	Authorizes metropolitan government to enter into a participation agreement with CK Development (Special)
BL2004-187	Authorizes metropolitan government to participation with John Ring, Tennessee Contractors, Inc. to provide public sewer service (Special)
BL2004-188	Names building (Special)
BL2004-189	Authorizes mayor to enter into a wire line crossing agreement with CSX Transportation, Inc. (Special)
BL2004-190	Authorizes Nashville Data Link, Inc., to construct, install, and maintain fiber optic cable within Davidson County, Tennessee (Special)
BL2004-191	Amends official street and alley acceptance and maintenance map (Special)

Ordinance Number	Disposition
BL2004-192	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2004-192 (Special)
BL2004-193	Amends official street and alley acceptance and maintenance map (Special)
BL2004-194	Amends the official street and alley acceptance and maintenance map (Special)
BL2004-195	Amends official street and alley acceptance and maintenance map (Special)
BL2004-196	Amends official street and alley acceptance and maintenance map (Special)
BL2004-197	Amends official street and alley acceptance and maintenance map (Special)
BL2004-198	Authorizes Pinnacle National Bank to construct, install and maintain underground encroachments (Special)
BL2004-199	Amends official zoning map (Special)
BL2004-200	Amends official zoning map (Special)
BL2004-201	Amends official zoning map (Special)
BL2004-202	Amends official zoning map (Special)
BL2004-203	Amends official zoning map (Special)
BL2004-204	Amends official zoning map (Special)
BL2004-205	Amends official zoning map (Special)
BL2004-206	Amends official zoning map (Special)
BL2004-207	(Withdrawn)
BL2004-208	(Withdrawn)
BL2004-209	(Defeated)
BL2004-210	Amends official zoning map (Special)
BL2004-211	Amends official zoning map (Special)
Amdt. 1	Adds new § 2; renumbers existing § 2 as § 3 and § 3 as § 4 of Ord. BL2004-211 (Special)
BL2004-212	Amends official zoning map (Special)
BL2004-213	Amends official zoning map (Special)
Amdt. 1	Amends certain language in caption and § 1 of Ord. BL2004-213 (Special)
BL2004-214	Amends official zoning map (Special)
BL2004-215	Amends official zoning map (Special)
BL2004-216	Amends official zoning map (Special)
BL2004-217	Amends official zoning map (Special)
Amdt. 1	Amends zoning classification in caption and § 1 of Ord. BL2004-217 (Special)
BL2004-218	Cancels Commercial Planned Unit Development for property abutting north margin of Richards Road at Antioch Pike (Special)
BL2004-219	Amends official zoning map (Special)
BL2004-220	Amends § 17.08.030 17.16.230, special exceptions (17.08, 17.16)
Amdt. 1	Repeals and replaces certain language in § 1 of Ord. BL2004-220 (17.16)
BL2004-221	(Substitute bill) Amends § 17.04.060; repeals and replaces 17.12.035, zoning (17.04, 17.12)
BL2004-222	(Withdrawn)
BL2004-223	(Substitute bill) Amends §§ 17.32.050 and 17.32.130, signs (17.32)
BL2004-224	(Withdrawn)
BL2004-225	(Withdrawn)
BL2004-226	(Defeated)
BL2004-227	(Failed)
BL2004-228	Authorizes metropolitan government to collect payments in lieu of ad valorem taxes (Special)
BL2004-229	Approves amendment to contract between metropolitan government and State of Tennessee Department of Correction and State Funding Board (Special)
BL2004-230	Readopts code (1.01)
BL2004-231	Authorizes metropolitan government to participate with Copperstone Development to provide public sewer service (Special)
BL2004-232	Amends official zoning map (Special)
BL2004-233	Amends § 17.08.030, zoning (17.08)
BL2004-234	Amends official zoning map (Special)
Amdt. 1	Amends certain language in Ord. BL2004-234 (Special)
BL2004-235	Adds § 13.20.095, excavation signs (13.20)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2004-235 (13.20)
BL2004-236	Approves agreement between the United States Department of the Army and metropolitan government for Richland Creek Feasibility Study Flood Damage Reduction (Special)
BL2004-237	(Failed)
BL2004-238	(Withdrawn)
BL2004-239	Abandons water line and easement to be replaced by a private water line and authorizes execution of documents to carry out abandonment (Special)
BL2004-240	Authorizes abandonment of existing sanitary sewer line and easement by the metropolitan government (Special)
BL2004-241	Authorizes acceptance of donation of certain property to metropolitan government for use and benefit of the Department of Parks and Recreation (Special)
BL2004-242	Authorizes Director of Public Property to accept and record easements in favor of the metropolitan government (Special)
BL2004-243	(Withdrawn)
BL2004-244	Amends § 17.40.470, tree removal (17.40)
BL2004-245	(Second substitute bill) Adds §§ 2.24.150 [2.24.146] and 2.68.020, public notification requirements (2.24, 2.68)

Ordinance Number	Disposition
BL2004-246	Authorizes acquisition of property by negotiation or condemnation for use in a public project for the metropolitan government (Special)
BL2004-247	Authorizes metropolitan government to enter into a lease agreement with the State of Tennessee for certain real property in Joelton, Tennessee (Special)
BL2004-248	Authorizes placement of automatic teller machines in police precincts (Special)
Amdt. 1	Amends certain language in first paragraph of Ord. BL2004-248 (Special)
BL2004-249	Authorizes metropolitan government to enter into encroachment agreement with Colonial Pipeline Company (Special)
BL2004-250	Authorizes metropolitan government, Water and Sewerage Services Department, to participate with B.I.G. Development, Inc., in lining the sewer along 1409 Fatherland Street (Special)
BL2004-251	Authorizes acceptance of funds from Skyline Medical Center for an appraisal of the Old Due West Landfill (Special)
BL2004-252	Authorizes metropolitan government to participate with Tennessee Contractors, Inc. to provide public sewer service (Special)
BL2004-253	Amends § 2.104.070, tree care and removal (2.104)
BL2004-254	Amends the official street and alley acceptance and maintenance map (Special)
BL2004-255	Adopts capital improvements budget and program 2004-2005 through 2009-2010 as official for fiscal year 2004-2005 (Special)
BL2004-256	(Substitute bill) Budget for fiscal year 2005 (Special)
BL2004-257	Establishes tax levy in the General Services District for fiscal year 2004-2005 and declares amount required for annual operation budget of the Urban Services District (Special)
BL2004-258	Amends §§ 10.60.010 and 10.60.100, false alarms (10.60)
BL2004-259	Adds § 11.26.045 (11.26)
BL2004-260	Amends § 13.20.030, permits (13.20)
BL2004-261	(Withdrawn)
BL2004-262	Amends §§ 2.56.530 and 2.56.550, traffic school fees (2.56)
Amdt. 1	Adds new § 4; amends §§ 1, 2, and new § 3; repeals § 3 and 5; renumbers § 4 to be § 3, § 6 to be § 5, § 7 to be § 6, § 8 to be § 7, § 9 to be § 8, § 10 to be § 9, traffic school fees (2.56)
BL2004-263	Authorizes Mayor's Office of Children and Youth to accept cash donations (Special)
BL2004-264	Authorizes Mayor's Office of Neighborhoods to accept cash and in-kind donations for the Spring Into Health Festival (Special)
BL2004-265	Approves amendment to contract between metropolitan government and Book Publishing Company (Special)
Amdt. 1	Adds new § 2; renumbers previous § 2 as § 3 or Ord. BL2004-265 (Special)
BL2004-266	Authorizes metropolitan government to participate with Tennessee Contractors, Inc. to provide public sewer service (Special)
BL2004-267	Abandons and relocates a portion of a water line and public utility easement upon installation and acceptance of proposed relocation (Special)
BL2004-268	Amends official zoning map (Special)
BL2004-269	Applies preliminary Planned Unit Development on property at 4103 Hillsboro Circle (Special)
BL2004-270	(Withdrawn)
BL2004-271	Amends official zoning map (Special)
BL2004-272	Amends official zoning map (Special)
BL2004-273	Amends official zoning map (Special)
BL2004-274	Amends official zoning map (Special)
BL2004-275	(Withdrawn)
BL2004-276	Amends official zoning map (Special)
BL2004-277	Applies Neighborhood Conservation Overlay District to properties between Douglas and Sharpe Avenue (Special)
BL2004-278	Amends official zoning map (Special)
BL2004-279	Makes provisions of Planned Unit Development District applicable to property at 3200 Earhart Road (Special)
Amdt. 1	Substitutes plan referenced in § 1 of Ord. BL2004-279 with new plan (Special)
BL2004-280	Applies the Historic Landmark Overlay District to certain areas (Special)
BL2004-281	Amends official zoning map (Special)
BL2004-282	Makes provision of Planned Unit Development District applicable to property abutting north side of Nolensville Pike (Special)
BL2004-283	Amends official zoning map (Special)
BL2004-284	Amends official zoning map (Special)
BL2004-285	Amends official zoning map (Special)
BL2004-286	Amends official zoning map (Special)
BL2004-287	Cancels an undeveloped portion of a Residential Planned Unit Development District approved for 130 multi-family units (Special)
BL2004-288	(Withdrawn)
BL2004-289	Adds § 17.20.125; amends § 17.20.120, sidewalks (17.20)

Ordinance Number	Disposition
Amdt. 1	Amends certain language in § 1 of Ord. BL2004-289; repeals and replaces § 2 of Ord. BL2004-289 (17.20)
BL2004-290	(Withdrawn)
BL2004-291	Makes applicable to certain property provisions of a Planned Unit Development District (Special)
BL2004-292	(Withdrawn)
BL2004-293	Amends preliminary plan for portion of planned unit development to permit development of townhouse units (Special)
BL2004-294	Amends official street and alley acceptance and maintenance map (Special)
BL2004-295	(Failed)
BL2004-296	(Withdrawn)
BL2004-297	Approves Amendment Two to the Memorandum of Agreement between the Davidson County Community Service Agency and the metropolitan government (Special)
BL2004-298	Adds § 5.04.060, review of fees (5.04)
BL2004-299	Approves a donation of equipment from the Community Foundation of Middle Tennessee to the metropolitan government (Special)
BL2004-300	Changes the effective date of the fee increase applicable to traffic school and certain zoning applications (Special)
BL2004-301	(Withdrawn)
BL2004-302	Adds § 8.04.180, removal of dog excrement (8.04)
Amdt. 1	Amends certain language in § 1 of Ord. BL2004-302 (8.04)
BL2004-303	(Substitute bill) Designates certain responsibility to metropolitan department of public works regarding public and private street signage (Special)
BL2004-304	(Substitute bill) Approves lease agreement between metropolitan government and Metropolitan Hospital Authority for certain real property (Special)
BL2004-305	(Withdrawn)
BL2004-306	(Withdrawn)
BL2004-307	Amends official street and alley acceptance and maintenance map (Special)
BL2004-308	Amends official street and alley acceptance and maintenance map (Special)
BL2004-309	Authorizes director of public property to accept and record an easement in favor of the metropolitan government for use in connection with development of Harpeth River greenway (Special)
BL2004-310	Approves and authorizes mayor to execute contract with the State Department of Transportation (Special)
BL2004-311	Adopts property identification maps for the metropolitan government (Special)
BL2004-312	Amends official zoning map (Special)
BL2004-313	Amends official zoning map (Special)
BL2004-314	(Withdrawn)
BL2004-315	(Withdrawn)
BL2004-316	(Withdrawn)
BL2004-317	Amends official zoning map (Special)
BL2004-318	Amends official zoning map (Special)
BL2004-319	(Withdrawn)
BL2004-320	Amends official zoning map (Special)
BL2004-321	(Withdrawn)
BL2004-322	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2004-322 by deleting certain properties (Special)
BL2004-323	Amends Title 17 by canceling an undeveloped commercial PUD along the north side of Wedgewood Avenue (Special)
BL2004-324	Amends official zoning map (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2004-324 (Special)
BL2004-325	Amends Title 17 by applying Urban Design Overlay district to properties at Hoggett Ford Road and Dodson Chapel Road (Special)
Amdt. 1	Repeals and replaces § 3 of Ord. BL2004-325 (Special)
BL2004-326	Amends official zoning map (Special)
Amdt. 1	Amends certain language in the caption and § 1 of Ord. BL2004-326 (Special)
BL2004-327	Amends official zoning map (Special)
BL2004-328	Makes applicable provisions of planned unit development district to property located at 4302 Parkview Circle (Special)
BL2004-329	Amends official zoning map (Special)
BL2004-330	Amends official zoning map (Special)
BL2004-331	Makes applicable to property abutting Lebanon Pike provisions of planned unit development district (Special)
Amdt. 1	Adds new § 2 to Ord. BL2004-331 and renumbers following sections accordingly (Special)
BL2004-332	Amends Title 17 by applying historic landmark overlay to district property at 3210 Avenal Avenue (Special)
BL2004-333	Amends official zoning map (Special)
BL2004-334	Amends official zoning map (Special)
BL2004-335	Amends Title 17 by making applicable to property at 4131 Andrew Jackson Parkway the provisions of a planned unit development district (Special)
BL2004-336	(Failed)
BL2004-337	(Failed)
BL2004-338	(Withdrawn)

Ordinance Number	Disposition
BL2004-339	(Withdrawn)
BL2004-340	Authorizes acquisition of property by negotiation or condemnation for the purpose of acquiring easements for use in public projects of the metropolitan government (Special)
BL2004-341	Authorizes acquisition of property by negotiation or condemnation for the purpose of acquiring easements for use in public projects of the metropolitan government (Special)
BL2004-342	Authorizes acquisition of property by negotiation or condemnation for the purpose of acquiring utility easements for use in public projects of the metropolitan government (Special)
BL2004-343	Authorizes metropolitan government to accept funds from Tennessee Valley Authority for use and benefit of Metropolitan Nashville Public Schools and to revise a transmission line easement (Special)
BL2004-344	(Withdrawn)
BL2004-345	Adds § 16.04.240 (16.04)
Amdt. 1	Amends § 1 of Ord. BL2004-345 (16.04)
BL2004-346	Amends § 16.24.330, fences (16.24)
Amdt. 1	Adds certain language to § 1 of Ord. BL2004-346 (Special)
BL2004-347	Approves contract for performance of juvenile detention services by juvenile court of the metropolitan government for State of Tennessee, Department of Children's Services (Special)
BL2004-348	Authorizes acquisition of property by negotiation or condemnation for Granny White Pike Sidewalk Improvements Project (Special)
BL2004-349	(Withdrawn)
BL2004-350	Repeals § 11.28.060, pinball machines (Repealer)
BL2004-351	Adds § 6.72.435, taxicab passenger's bill of rights (6.72)
Amdt. 1	Adds certain language to § 1 of Ord. BL2004-351 (6.72)
BL2004-352	Adds § 2.24.103, Title VI implementation (2.24)
BL2004-353	Amends §§ 10.60.010, 10.60.020, 10.60.070, 10.60.080, and 10.60.100, burglar and fire alarm permits (10.60)
BL2004-354	(Withdrawn)
BL2004-355	Consents to mergers of Tennessee Football LP, Cumberland Stadium LP, and Dream Suites LP, and acknowledges assumption of obligations of these entities by Tennessee Football Inc., Cumberland Stadium Inc. and Dream Suites Inc. (Special)
BL2004-356	Readopts code (1.01)
BL2004-357	Abandons public utility and drainage easements on Lots 461 and 462 and authorizes execution of related documents (Special)
BL2004-358	Authorizes acceptance of certain easements described in plans for Wildview Drive Stormwater Project (Special)
BL2004-359	Authorizes acceptance of certain easements described in plans for Cross Creek Road Stormwater Project (Special)
BL2004-360	Authorizes acceptance of certain easements described in plans for Craighead Patten Properties Stormwater Project (Special)
BL2004-361	Authorizes acceptance of easement described in plans for First Universal Church Stormwater Project (Special)
BL2004-362	Authorizes acceptance of easement described in plans for Brick Church Pike Stormwater Project (Special)
BL2004-363	Authorizes acceptance of easement described in plans for Robwood Drive Stormwater Project (Special)
BL2004-364	Authorizes acceptance of easement described in plans for Hickory Hill Lane Stormwater Project (Special)
BL2004-365	Authorizes acceptance of certain easements described in plans for Indian Summer Drive Stormwater Project (Special)
BL2004-366	Authorizes metropolitan government to participate with CPS Land, LLC, to provide public sewer service in Williamson County to Bridgeton Park (Special)
BL2004-367	Authorizes metropolitan government to participate with CPS Land, LLC, to provide public sewer service in Williamson County to Bridgeton Park (Special)
BL2004-368	Authorizes metropolitan government to participate with Cates Kottas Development Company, LLC, to provide public sewer service in Williamson County to Bent Creek Subdivision Project (Special)
BL2004-369	Authorizes metropolitan government to participate with Cates Kottas Development Company, LLC, to provide public sewer service in Williamson County to the Brookfield Estates Section 15 and Section 17 Subdivision Project (Special)

Ordinance Number	Disposition
BL2004-370	Authorizes acquisition of property by negotiation or condemnation for use in a public project for the metropolitan government (Special)
BL2004-371	Amends § 17.40.470, tree removal permit exemption (17.40)
BL2004-372	Amends official zoning map (Special)
BL2004-373	Amends Substitute Ordinance BL2004-245 by renumbering incorrect section number 2.24.150 as 2.24.146 (2.24)
BL2004-374	Adds § 12.12.190, Neighborhood Traffic Management Program (12.12)
Amdt. 1	Amends certain language in § 1 of Ord. BL2004-374 (12.12)
BL2004-375	Authorizes mayor or his or her designee to execute license agreement with Motion Picture Licensing Corporation (Special)
BL2004-376	Authorizes acceptance of certain easement described in plans for Morton Mill Road (Special)
BL2004-377	Authorizes acceptance of easement described in plans for Heritage Court Stormwater Project (Special)
BL2004-378	Authorizes metropolitan government to participate with Centex Homes to provide public sewer service at Lakeside Cove (Special)
BL2004-379	Authorizes abandonment of existing sanitary sewer line easement (Special)
BL2004-380	Authorizes acquisition of property by negotiation or condemnation for Simpkins Street Sidewalk Improvements Project (Special)
BL2004-381	Authorizes director of department of water and sewerage services to enter into agreements with the State of Tennessee to certify department's authority to approve water and wastewater engineering construction plans (Special)
BL2004-382	Grants power to manage metropolitan government's participation in Tennessee Fast Track Industrial Development Program to public works department (Special)
BL2004-383	Authorizes mayor to execute a contract in lieu of performance bond with Tennessee Department of Environment and Conservation (Special)
BL2004-384	Amends official zoning map (Special)
BL2004-385	Amends official zoning map (Special)
Amdt. 1	Amends certain language in caption and § 1 and replaces sketch referenced in § 1 of Ord. BL2004-385 (Special)
BL2004-386	Amends official zoning map (Special)
BL2004-387	Amends Residential Planned Unit Development district (Special)
Amdt. 1	Adds certain language to § 3 of Ord. BL2004-387 (Special)
BL2004-388	Amends official zoning map (Special)
BL2004-389	Makes applicable provisions of Planned Unit Development district located at 251 Holt Hills Road and Holt Hills Road to permit 49 single-family lots (Special)
BL2004-390	Amends official zoning map (Special)
BL2004-391	Amends official zoning map (Special)
BL2004-392	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2004-392 (Special)
BL2004-393	(Withdrawn)
BL2004-394	Amends official zoning map (Special)
BL2004-395	Makes applicable the provisions of a planned unit development district located at 5606 Cloverland Drive (Special)
BL2004-396	Amends official zoning map (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2004-396 (Special)
BL2004-397	Amends official zoning map (Special)
BL2004-398	Amends official zoning map (Special)
BL2004-399	Cancels portion of Commercial PUD (Special)
BL2004-400	Amends official zoning map (Special)
BL2004-401	Cancels commercial planned unit development district located at 729, 733, 727, and 739 Briley Parkway (Special)
BL2004-402	Amends official zoning map (Special)
BL2004-403	Amends official zoning map (Special)
BL2004-404	Amends official zoning map (Special)
BL2004-405	Amends official zoning map (Special)
BL2004-406	Applies Historic Landmark Overlay District to certain areas (Special)
Amdt. 1	Amends certain language in § 1 of Ord. BL2004-406 (Special)
BL2004-407	Amends official zoning map (Special)
BL2004-408	(Withdrawn)
BL2004-409	(Substitute bill) Amends § 17.40.740, zoning (17.40)
BL2004-410	(Withdrawn)
BL2004-411	Amends official zoning map (Special)
BL2004-412	(Reserved)
BL2004-413	Establishes program for purpose of providing assistance to low-income elderly residents (Special)
BL2004-414	(Withdrawn)
BL2004-415	Abandons sewer line and public utility drainage easement (special)
BL2004-416	Authorizes acquisition of property by negotiation or condemnation for purpose of acquiring easements for use in public projects of the metropolitan government (Special)

Ordinance Number	Disposition
BL2004-417	Authorizes Metropolitan Government to participate with M2H Group to improve public water service (Special)
BL2004-418	Approves construction agreement with CSX Transportation, Inc. (Special)
BL2004-419	Authorizes director of public property to accept and record an easement in favor of metropolitan government (Special)
BL2004-420	Readopts code (1.01)
BL2004-421	Adds § 5.04.060 [5.04.070], grants to nonprofit organizations (5.04)
Amdt. 1	Amends § 1 of Ord. BL2004-421 by correcting section number (5.04)
Amdt. 2	Renumbers § 2 to be § 3 and adds new § 2 to Ord. BL2004-421 (5.04)
BL2004-422	Amends official street and alley acceptance and maintenance map (Special)
BL2004-423	Approves and authorizes mayor to execute contract with State of Tennessee Department of Transportation (Special)
BL2004-424	(Substitute bill) Approves amendment no. 7 to Capitol Mall Redevelopment Project Plan (Special)
BL2004-425	Authorizes mayor to submit five-year consolidated plan for housing and community development programs to the U.S. Department of Housing and Urban Development (Special)
BL2004-426	Creates emergency telecommunications positions (Special)
BL2004-427	Amends §§ 13.32.120 and 16.24.330, barbed wire and razor wire fencing (13.32, 16.24)
BL2004-428	Adds § 2.40.115, report of judgments (2.40)
BL2004-429	Authorizes Metropolitan Government to participate with Mr. Thomas L. Cunningham to provide public water service in Davidson County to Dawnbrook Project (Special)
BL2004-430	Approves and authorizes mayor to execute contract with State of Tennessee Department of Transportation (Special)
BL2004-431	(Withdrawn)
BL2004-432	Amends § 17.04.060 (17.04)
BL2004-433	Approves contract with the Emergency Communications District (Special)
BL2004-434	(Withdrawn)
BL2004-435	Amends §§ 6.80.535.A., 6.80.550.A.—C., G., H. (6.80)
Amdt. 1	Amends § 2 of Ord. BL2004-435 (6.80)
BL2004-436	Authorizes acceptance of easement (Special)
BL2004-437	Authorizes acceptance of easement (Special)
BL2004-438	Authorizes acceptance of easement (Special)
BL2004-439	Authorizes acceptance of easement (Special)
BL2004-440	Authorizes acceptance of easement (Special)
BL2004-441	Authorizes acceptance of easement (Special)
BL2004-442	Authorizes acceptance of easement (Special)
BL2004-443	Authorizes acceptance of easement (Special)
BL2004-444	Authorizes acceptance of easement (Special)
BL2004-445	Authorizes acceptance of easement (Special)
BL2004-446	Authorizes acceptance of easement (Special)
BL2004-447	Authorizes acceptance of easement (Special)
BL2004-448	Authorizes acceptance of easement (Special)
BL2004-449	Authorizes acceptance of easement (Special)
Amdt. 1	Amends caption of Ord. BL2004-449 (Special)
BL2004-450	Authorizes acceptance of easement (Special)
BL2004-451	Authorizes acceptance of easement (Special)
BL2004-452	(Withdrawn)
BL2004-453	Authorizes acceptance of easement (Special)
BL2004-454	Authorizes acceptance of easement (Special)
BL2004-455	Authorizes acceptance of easement (Special)
BL2004-456	Authorizes acceptance of easement (Special)
BL2004-457	Abandons portion of water line and easement and sewer line and easement (Special)
Amdt. 1	Deletes § 3 of Ord. BL2004-457 (Special)
BL2004-458	Authorizes United Telephone Company to construct, install, and maintain underground communications cable (Special)
BL2004-459	Amends official zoning map (Special)
BL2004-460	Amends official zoning map (Special)
BL2004-461	(Withdrawn)
BL2004-462	Amends official zoning map (Special)
BL2004-463	(Failed)
BL2004-464	Amends official zoning map (Special)
BL2004-465	Amends official zoning map (Special)
BL2004-466	Amends official zoning map (Special)
BL2004-467	Amends official zoning map (Special)
BL2004-468	Amends official zoning map (Special)
BL2004-469	Amends official zoning map (Special)

Ordinance Number	Disposition
Amdt. 1	Amends caption, §§ 1, 2 and substitutes sketch of Ord. BL2004-469 (Special)
BL2004-470	Amends official zoning map (Special)
BL2004-471	Amends official zoning map (Special)
BL2004-472	Amends official zoning map (Special)
BL2004-473	Amends official zoning map (Special)
BL2004-474	Amends official zoning map (Special)
BL2004-475	Amends official zoning map (Special)
BL2004-476	Amends official zoning map (Special)
BL2004-477	Amends official zoning map (Special)
BL2004-478	Amends official zoning map (Special)
BL2004-479	Amends official zoning map (Special)
BL2004-480	Amends official zoning map (Special)
BL2004-481	Amends official zoning map (Special)
BL2004-482	Amends official zoning map (Special)
BL2004-483	Amends official zoning map (Special)
Amdt. 1	Amends caption, § 1 and substitutes sketch of Ord. BL2004-483 (Special)
Amdt. 2	Amends Ord. BL2004-483 by deleting certain parcels (Special)
BL2004-484	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2004-484 by deleting § 3 and renumbering § 4 as § 3 (Special)
BL2004-485	Makes applicable provisions of planned unit development district located at Burkitt Road (Special)
Amdt. 1	Amends certain language in caption and in § 1, substitutes plan incorporated into § 1, and renumbers § 4 as § 5 and adds new § 4 to Ord. BL2004-485 (Special)
BL2004-486	Amends official zoning map (Special)
Amdt. 1	Amends attachment to, and replaces sketch referenced in § 1 of, Ord. BL2004-486 (Special)
BL2004-487	Amends official zoning map (Special)
BL2004-488	(Substitute bill) (Withdrawn)
BL2004-489	Amends § 17.40.060, official zoning map (17.40)
BL2004-490	Repeals and replaces § 17.36.260, adult entertainment establishments (17.36)
BL2004-491	Amends § 17.20.120, fees (17.20)
BL2004-492	Amends Table 17.08.030, 17.16.030, 17.16.140, 17.24.050.A., 17.40.340 (17.08, 17.16, 17.24, 17.40)
Amdt. 1	Amends caption and § 2 of Ord. BL2004-492 (17.16)
Amdt. 2	Amends § 2 of Ord. BL2004-492 (17.16)
BL2004-493	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2004-493 (Special)
BL2004-494	Amends official zoning map (Special)
BL2004-495	(Withdrawn)
BL2004-496	Amends official zoning map (Special)
BL2004-497	Amends official zoning map (Special)
BL2004-498	Adds § 7.08.105; amends §§ 7.08.010, 7.08.030, 7.08.090, and 7.08.230, caterer's permit (7.08)
Amdt. 1	Repeals and replaces § 4 of Ord. BL2004-498 (7.08)
BL2004-499	(Withdrawn)
BL2004-500	(Withdrawn)
BL2004-501	Authorizes director of public property, or his designee, to accept, execute and record a quitclaim deed (Special)
BL2004-502	Authorizes a permanent and temporary easement (Special)
BL2004-503	Abandons portion of sanitary sewer line and easement (Special)
BL2004-504	Abandons portion of sanitary sewer line and easement (Special)
BL2005-505	Adds Ch. 10.26; amends §§ 10.28.010 and 16.24.330, high weeds and debris (10.26, 10.28, 16.24)
BL2005-506	(Withdrawn)
BL2005-507	Amends official street and alley acceptance and maintenance map (Special)
BL2005-508	Amends § 15.60.180, ammonia surcharge (15.60)
Amdt. 1	Replaces § 1 of Ord. BL2005-508 (15.60)
BL2005-509	Authorizes metropolitan government to enter into lease agreement with the Metropolitan Nashville Airport Authority (Special)
BL2005-510	Approves Amendment No. 2 to the Five Points Redevelopment Plan (Special)
BL2005-511	(Withdrawn)
BL2005-512	Authorizes acceptance of an easement described in the plans for 485 Allied Drive (Special)
BL2005-513	Authorizes acceptance of easements described in the plans for 3438 Dickerson Pike (Special)
BL2005-514	Authorizes acceptance of easement described in the plans for 3211 Franklin Limestone Road (Special)
BL2005-515	Authorizes acceptance of easement described in the plans for 9770 Highway 96 (Special)
BL2005-516	Authorizes acceptance of easement described in the plans for 310 Newsome Street (Special)
BL2005-517	Abandons water line and all retained easements (Special)
BL2005-518	Authorizes metropolitan government to participate with The Jones Company of Tennessee to provide public sewer service in Williamson County to Arlington Heights Subdivision (Special)

Ordinance Number	Disposition
BL2005-519	Authorizes metropolitan government to participate with Beazer Homes Corporation to provide public sewer service in Williamson County to Ballenger Farms (Special)
BL2005-520	Adopts official street and alley acceptance and maintenance map (Special)
BL2005-521	(Withdrawn)
BL2005-522	Approves parking agreement between the metropolitan government and Stahlman Redevelopment Partners, LLC (Special)
BL2005-523	Makes applicable provisions of planned unit development district (Special)
BL2005-524	Amends official zoning map (Special)
BL2005-525	Amends official zoning map (Special)
BL2005-526	Amends official zoning map (Special)
BL2005-527	Amends official zoning map (Special)
BL2005-528	Makes applicable provisions of planned unit development district (Special)
BL2005-529	Approves agreement with the Tennessee Performing Arts Center Management Corporation (Special)
BL2005-530	Amends § 3.08.110, employee benefit board (3.08)
BL2005-531	(Substitute bill) Amends § 11.28.080, prohibition on loitering (11.28)
BL2005-532	Readopts code (1.01)
BL2005-533	Amends official street and alley acceptance and maintenance map (Special)
BL2005-534	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2005-534 (Special)
BL2005-535	Amends official zoning map (Special)
Amdt. 1	Deletes § 3 and renumbers § 4 as § 3 of Ord. BL2005-535 (Special)
BL2005-536	Amends official zoning map (Special)
BL2005-537	(Withdrawn)
BL2005-538	Amends official zoning map (Special)
Amdt. 1	Amends certain language in caption and § 1, and sketch attached to, Ord. BL2005-538, (Special)
BL2005-539	Amends official zoning map (Special)
BL2005-540	Amends official zoning map (Special)
BL2005-541	Amends official zoning map (Special)
BL2005-542	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-542 by adding conditions (Special)
BL2005-543	Amends official zoning map (Special)
BL2005-544	Amends official zoning map (Special)
BL2005-545	Amends official zoning map (Special)
BL2005-546	(Failed)
BL2005-547	Amends official zoning map (Special)
BL2005-548	Amends official zoning map (Special)
Amdt. 1	Amends zoning designation in caption and § 1 of Ord. BL2005-548 (Special)
BL2005-549	Amends official zoning map (Special)
BL2005-550	Applies urban design overlay district to various properties along Harding Pike and White Bridge Pike, to permit a mixture of uses (Special)
Amdt. 1	Replaces attachment with, and attaches condition to, Ord. BL2005-550 (Special)
BL2005-551	Amends official zoning map (Special)
Amdt. 1	Amends caption and substitutes sketch in § 1 of Ord. BL2005-551 (Special)
BL2005-552	Amends § 17.32.040, temporary signs (17.32)
BL2005-553	Amends § 17.40.120, master development plan application (17.40)
BL2005-554	Cancels undeveloped portion of residential planned unit development district approved for multi-family units (Special)
BL2005-555	Amends official zoning map (Special)
Amdt. 1	Repeals and replaces § 3 of Ord. BL2005-555 and adds § 4 (Special)
BL2005-556	Applies neighborhood conservation overlay district to various properties (Special)
BL2005-557	Approves agreement with Oasis Center regarding participation in Oasis Americorps Program (Special)
BL2005-558	Establishes Criminal Justice Planning Unit as a department of metropolitan government (Special)
BL2005-559	(Withdrawn)
BL2005-560	(Withdrawn)
BL2005-561	Approves and authorizes mayor to execute contract with State of Tennessee Department of Transportation regarding traffic signals (Special)
BL2005-562	Approves disposition of certain parcels of surplus property by director of public property (Special)
Amdt. 1	Amends § 1 of Ord. BL2005-562 by deleting property from list of surplus properties (Special)
Amdt. 2	Amends § 1 of Ord. BL2005-562 by deleting property from list of surplus properties (Special)
Amdt. 3	Amends § 1 of Ord. BL2005-562 by deleting property from list of surplus properties (Special)
BL2005-563	Authorizes acceptance of easement described in plans for Nashville Auto Diesel Stormwater Project (Special)
BL2005-564	(Withdrawn)
BL2005-565	Amends official zoning map (Special)
Amdt. 1	Amends zoning classification in caption and § 1 of Ord. BL2005-565 (Special)
BL2005-566	(Withdrawn)

Ordinance Number	Disposition
BL2005-567	Approves and accepts contribution from Riverwalk Development Partners, Inc. for improving traffic infrastructure (Special)
Amdt. 1	Amends Ord. BL2005-567 by renumbering the effective clause, identified as the second § 2, as § 3 (Special)
BL2005-568	Approves two agreements with Vanderbilt University for participation of medical students in metropolitan fire department's rescue programs (Special)
BL2005-569	(Withdrawn)
BL2005-570	Amends official street and alley acceptance and maintenance map (Special)
BL2005-571	Abandons sewer line and easement (Special)
BL2005-572	(Failed)
BL2005-573	(Failed)
BL2005-574	Amends § 17.32.160, signs (17.32)
BL2005-575	(Defeated)
BL2005-576	Authorizes acquisition and exchange of property by negotiation or condemnation/ fee simple take for acquiring land and easements, for use in public projects of metropolitan government (Special)
BL2005-577	(Withdrawn)
BL2005-578	Accepts donation from Fred's Inc. for metropolitan police department (Special)
BL2005-579	(Withdrawn)
BL2005-580	(Withdrawn)
BL2005-581	(Substitute bill) Names Davidson County Sheriff's Office Training Academy complex as the "Jerry Newson Center" (Special)
BL2005-582	Establishes homelessness commission (Special)
BL2005-583	(Failed)
BL2005-584	(Withdrawn)
BL2005-585	(Withdrawn)
BL2005-586	(Substitute bill) Amends Official Street and Alley Acceptance and Maintenance Map, and authorizes execution of documents necessary to execute and convey certain surplus right-of-way and contiguous property to the adjacent property owner (Special)
BL2005-587	Authorizes acceptance of certain easements for stormwater projects of the metropolitan department of water and sewerage services (Special)
BL2005-588	Authorizes acceptance of certain easements for stormwater projects of the metropolitan department of water and sewerage services (Special)
BL2005-589	Authorizes acceptance of certain easements for stormwater projects of the metropolitan department of water and sewerage services (Special)
BL2005-590	Amends official street and alley acceptance and maintenance map (Special)
BL2005-591	Amends official street and alley acceptance and maintenance map (Special)
BL2005-592	Amends official street and alley acceptance and maintenance map (Special)
BL2005-593	Amends official street and alley acceptance and maintenance map (Special)
BL2005-594	Amends official street and alley acceptance and maintenance map (Special)
BL2005-595	Amends official street and alley acceptance and maintenance map (Special)
BL2005-596	Amends official street and alley acceptance and maintenance map (Special)
BL2005-597	Amends official street and alley acceptance and maintenance map (Special)
BL2005-598	Abandons right-of-way and utility easement and consolidates certain areas into single lot (Special)
BL2005-599	Abandons stormwater drainage easement to be replaced by another stormwater drainage easement (Special)
BL2005-600	Abandons stormwater drainage easement and authorizes acceptance of replacement easements (Special)
BL2005-601	Authorizes metropolitan government to participate with Frank V. Buonaiuto to provide public sewer service in Williamson County to Eugene Downing Property (Special)
BL2005-602	Authorizes metropolitan government to participate with Cates-Kottas Development to provide public sewer service in Williamson County to Brookfield Subdivision (Special)
BL2005-603	Applies neighborhood landmark overlay district to property located at 1100 Clifton Lane (Special)
BL2005-604	Applies historic landmark overlay district to Fort Negley properties (Special)
BL2005-605	(Withdrawn)
BL2005-606	Applies historic landmark overlay district to property for Cameron Middle School (Special)
BL2005-607	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2005-607 by deleting list of parcels and substituting new sketch (Special)
BL2005-608	Amends official zoning map (Special)
BL2005-609	(Withdrawn)
BL2005-610	Amends official zoning map (Special)
BL2005-611	Amends official zoning map (Special)

Ordinance Number	Disposition
Amdt. 1	Amends Ord. BL2005-611 by renumbering § 4 as § 6 and inserting new §§ 4 and 5 (Special)
BL2005-612	Amends official zoning map (Special)
Amdt. 1	Amends certain language in caption and § 1 of Ord. BL2005-612 (Special)
BL2005-613	Makes applicable provisions of a planned unit development district (Special)
Amdt. 1	Amends certain language in caption and § 1 of Ord. BL2005-613 (Special)
BL2005-614	Amends official zoning map (Special)
Amdt. 1	Replaces sketch referenced in § 1 of Ord. BL2005-614 (Special)
BL2005-615	Amends official zoning map (Special)
BL2005-616	(Withdrawn)
BL2005-617	Amends official zoning map (Special)
BL2005-618	Amends official zoning map (Special)
BL2005-619	Amends portion of commercial planned unit development (Special)
BL2005-620	Amends official zoning map (Special)
BL2005-621	Amends official zoning map (Special)
BL2005-622	Amends official zoning map (Special)
BL2005-623	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-623 by renumbering §§ 2, 3 as 3, 4 and adding new § 2 (Special)
BL2005-624	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-624 by replacing sketch referenced in § 1 (Special)
BL2005-625	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-625 by replacing sketch referenced in § 1 (Special)
BL2005-626	Amends official zoning map (Special)
Amdt. 1	Amends zoning classification in the caption, § 1, and the referenced sketch in Ord. BL2005-626 (Special)
BL2005-627	Amends official zoning map (Special)
BL2005-628	Adds § 17.28.103; amends §§ 17.04.060, 17.28.080, and 17.40.340; renumbers § 17.28.103 to be § 17.28.104, underground utilities (17.04, 17.28, 17.40)
BL2005-629	(Withdrawn)
BL2005-630	Amends § 17.04.060 and Table 17.08.030 (17.04, 17.08)
BL2005-631	Amends § 17.40.650, zoning (17.40)
Amdt. 1	Amends certain language in fourth recital clause and in § 1 of Ord. BL2005-631 (17.40)
BL2005-632	Amends official zoning map (Special)
BL2005-633	Amends Table 17.32.130D, Note 3 (17.32)
BL2005-634	Authorizes The Doubletree Hotel (Sun Rockpoint Nashville Hotel Lessee, Inc.) to construct, install, and maintain stamped concrete and install new trees (Special)
BL2005-635	Amends § 11.26.010, definitions "Felt tip marker" and "Graffiti stick" (11.26)
BL2005-636	(Withdrawn)
BL2005-637	(Withdrawn)
BL2005-638	Amends § 2.108.020.A (2.108)
Amdt. 1	Amends § 1 of Ord. BL2005-638 (2.108)
BL2005-639	(Failed)
BL2005-640	Authorizes Metropolitan Department of Law to compromise and settle the lawsuit styled Calvin B. Champion et al. v. Outlook Nashville, Inc., Debbie Miller, Craig Dickhaus and Richard Woodside (Special)
BL2005-641	Authorizes the mayor to execute utility relocation contract no. 6504 (Special)
BL2005-642	Amends geographical information systems map (Special)
BL2005-643	Amends official street and alley acceptance and maintenance map (Special)
BL2005-644	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends phrase in § 1 of Ord. BL2005-644 (Special)
BL2005-645	Amends official street and alley acceptance and maintenance map (Special)
BL2005-646	Approves and accepts contribution from Pulte Homes for traffic infrastructure improvements at Cloverland Drive (Special)
BL2005-647	Authorizes participation with project no. 04-SL-207 (Special)
BL2005-648	(Failed)
BL2005-649	Amends official zoning map (Special)
BL2005-650	Amends §§ 17.12.040.E.1.b. and 17.12.050.A. (17.12)
BL2005-651	(Failed)
BL2005-652	Renewal of sewer easement (Special)
BL2005-653	Renewal of sewer easement (Special)
BL2005-654	Authorizes Nashville Data Link, Inc. to construct, install and maintain telecommunications cables (Special)
BL2005-655	Authorizes acquisition of property (Special)
BL2005-656	Amends official zoning map (Special)
BL2005-657	(Withdrawn)
BL2005-658	Adds § 17.32.070.C., renumbers C. as D. (17.32)
Amdt. 1	Amends § 1 of Ord. BL2005-658 (17.32)
BL2005-659	Repeals §§ 2.04.050—2.04.130, 2.04.150—2.04.200; adds §§ 2.04.050—2.04.100 (2.04)
Amdt. 1	Amends § 2 of Ord. BL2005-659 by replacing provisions of subsection 2.04.090.A.8. (2.04)
Amdt. 2	Amends § 2 of Ord. BL2005-659 by substituting the Annual Disclosure Statement (2.04)

Ordinance Number	Disposition
Amdt. 3	Amends § 2 of Ord. BL2005-659 by amending the Annual Disclosure Statement (2.04)
BL2005-660	Approves sublease agreement (Special)
BL2005-661	(Withdrawn)
BL2005-662	Capital improvements budget and program 2005—2006 through 2010—2011 (Special)
BL2005-663	Fiscal year 2006 budget (Special)
BL2005-664	Establishes tax levy in the General Services District for the fiscal year 2005—2006 (Special)
BL2005-665	Levy of a local option sales and use tax (Special)
BL2005-666	Amends § 5.32.030.B. and § 5.32.110.A (5.32)
BL2005-667	Names new criminal courts building on Second Avenue North, adjacent to the Ben West Building, the "Justice A.A. Birch Building" (Special)
BL2005-668	Amends § 16.04.200 (16.04)
Amdt. 1	Amends § 1 of Ord. BL2005-668 (16.04)
BL2005-669	Authorizes acquisition of property (Special)
BL2005-670	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2005-671	Authorizes acquisition of property (Special)
BL2005-672	Readopts code (1.01)
BL2005-673	Amends official zoning map (Special)
BL2005-674	(Withdrawn)
BL2005-675	(Withdrawn)
BL2005-676	Amends official zoning map (Special)
BL2005-677	Amends official zoning map (Special)
BL2005-678	Amends official zoning map (Special)
BL2005-679	Amends official zoning map (Special)
BL2005-680	Amends official zoning map (Special)
BL2005-681	Amends official zoning map (Special)
BL2005-682	Amends official zoning map (Special)
BL2005-683	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-683 by renumbering § 3 as § 4 and adding new § 3 (Special)
BL2005-684	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2005-684 (Special)
BL2005-685	Amends official zoning map (Special)
BL2005-686	Amends official zoning map (Special)
Amdt. 1	Amends caption of Ord. BL2005-686 (Special)
BL2005-687	Amends official zoning map (Special)
BL2005-688	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-688 by renumbering § 3 as § 4 and adding new § 3 (Special)
BL2005-689	Amends official zoning map (Special)
BL2005-690	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2005-690 by deleting specific parcels and substituting new sketch (Special)
BL2005-691	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2005-691 by deleting certain parcels to be rezoned and substituting sketch (Special)
BL2005-692	(Withdrawn)
BL2005-693	Amends official zoning map (Special)
BL2005-694	Amends official zoning map (Special)
Amdt. 1	Amends caption of Ord. BL2005-694 (Special)
BL2005-695	Amends official zoning map (Special)
BL2005-696	Amends official zoning map (Special)
BL2005-697	Amends official zoning map (Special)
BL2005-698	Amends official zoning map (Special)
BL2005-699	Amends 31st Avenue/Long Boulevard Urban Design Overlay District (Special)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2005-699 (Special)
BL2005-700	Amends Bedford Avenue Urban Design Overlay District (Special)
BL2005-701	Repeals § 17.16.160.A. and renumbers B. and C. as A. and B.; adds 17.36.110.D. and 17.36.120.C; amends § 17.40.280 (17.16, 17.36, 17.40)
BL2005-702	Amends §§ 17.36.300, 17.36.320 (17.36)
BL2005-703	Amends Lenox Village Urban Design Overlay District (Special)
Amdt. 1	Amends language in § 1 of Ord. BL2005-703
Amdt. 2	Amends language in § 1 of Ord. BL2005-703
BL2005-704	Amends Table 17.08.030 (17.08)
BL2005-705	(Withdrawn)
BL2005-706	(Failed)
BL2005-707	Repeals and replaces § 2.40.130.B.2. (2.40)
BL2005-708	Authorizes participation with project no. 03-SC-216 (Special)
BL2005-709	Approves disposition of a parcel of surplus property (Special)
BL2005-710	Amends geographical information systems map (Special)
BL2005-711	Amends official street and alley acceptance and maintenance map (Special)
BL2005-712	Amends Table 17.12.020C and § 17.24.190.B. (17.12, 17.24)
Amdt. 1	Amends § 1 to Ord. BL2005-712 (17.12)
Amdt. 2	Amends §§ 1 and 2 to Ord. BL2005-712 (17.12, 17.24)
BL2005-713	Amends § 17.40.060.A. (17.40)
BL2005-714	Adopts property identification maps (Special)

Ordinance Number	Disposition
BL2005-715	Approves agreement with Bureau of Alcohol, Tobacco, Firearms and Explosives regarding participation in the National Integrated Ballistic Information Network (Special)
BL2005-716	Authorizes the acquisition of property (Special)
Amdt. 1	Repeals and replaces § 2 of Ord. BL2005-716 (Special)
BL2005-717	(Withdrawn)
BL2005-718	(Failed)
BL2005-719	Abandons portion of certain utility easement (Special)
BL2005-720	Approves cost sharing agreement with Department of the Army for the Cumberland Riverfront Redevelopment Plan Project (Special)
BL2005-721	Authorizes participation with project no. 04-SL-92 (Special)
BL2005-722	Abandons portion of certain sanitary sewer line and easement (Special)
BL2005-723	Authorizes the acquisition of property (Special)
BL2005-724	Creates "Seniors Tax Relief Grant Program" (Special)
BL2005-725	(Withdrawn)
BL2005-726	(Withdrawn)
BL2005-727	Amends § 16.24.330.K.3. (16.24)
BL2005-728	(Withdrawn)
BL2005-729	(Withdrawn)
BL2005-730	Adds § 5.04.080, monthly revenue collection reports (5.04)
Amdt. 1	Amends certain language in § 1 of Ord. BL2005-730 (5.04)
BL2005-731	Approves contract between the Metropolitan Government of Nashville and Davidson County and Loss Prevention Specialists, Inc. for recovery of funds (Special)
Amdt. 1	Amends Ord. BL2005-731 by renumbering § 3 as § 4 and adding new § 3 (Special)
BL2005-732	Authorizes the acceptance of certain donations to the Mayor's Office of Emergency Management (Special)
BL2005-733	Accepts donation from Nashville Downtown Partnership (Special)
BL2005-734	Authorizes the mayor to execute a contract with the State of Tennessee Department of Transportation (Special)
BL2005-735	Authorizes the acceptance of certain easements (Special)
BL2005-736	Authorizes the acceptance of certain easements (Special)
BL2005-737	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends § 3 of Ord. BL2005-737 (Special)
BL2005-738	Amends official street and alley acceptance and maintenance map (Special)
BL2005-739	Authorizes the acceptance of certain easements (Special)
BL2005-740	Amends official zoning map (Special)
BL2005-741	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-741 by renumbering § 3 as § 4 and adding new § 3 (Special)
BL2005-742	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-742 by deleting certain parcels to be rezoned (Special)
BL2005-743	(Withdrawn)
BL2005-744	Amends official zoning map (Special)
BL2005-745	Amends official zoning map (Special)
BL2005-746	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-746 by renumbering § 4 as § 6 and inserting new §§ 4 and 5 (Special)
Amdt. 2	Amends § 3 of Ord. BL2005-746 (Special)
BL2005-747	Amends official zoning map (Special)
BL2005-748	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-748 by renumbering §§ 2, 3 as 3, 4 and adding new § 2 (Special)
BL2005-749	(Withdrawn)
BL2005-750	Amends official zoning map (Special)
BL2005-751	Amends official zoning map (Special)
BL2005-752	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-752 by adding §§ 4 and 5 (Special)
BL2005-753	Amends official zoning map (Special)
BL2005-754	Amends official zoning map (Special)
BL2005-755	Amends official zoning map (Special)
Amdt. 1	Amends zoning designation in caption and § 1 of Ord. BL2005-755 (Special)
BL2005-756	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2005-756 (Special)
BL2005-757	(Withdrawn)
BL2005-758	Amends official zoning map (Special)
BL2005-759	Amends official zoning map (Special)
BL2005-760	Amends official zoning map (Special)
BL2005-761	(Failed)
BL2005-762	Amends §§ 17.08.010, 17.08.020.C., Tables 17.08.030, 17.12.020C, 17.12.030A, 17.12.030B; adds §§ 17.40.105 and 17.40.106; amends §§ 17.40.170.B., C., 17.40.340 (17.08, 17.12, 17.40)
Amdt. 1	Amends §§ 2 and 7 of Ord. BL2005-762 (17.08, 17.40)
BL2005-763	(Withdrawn)

Ordinance Number	Disposition
BL2005-764	Amends Ord. 94-1185 by transferring telecommunications franchise from ICG Access Services, Inc. to Xspedius Management Company (Special)
BL2005-765	Approves agreement with the United States Department of the Army for the Cowan Street Streambank Protection Project (Special)
BL2005-766	Authorizes the acceptance of deeds of perpetual channel protection easements (Special)
BL2005-767	Adopts a plan to extend the boundaries of the Urban Services District (Special)
BL2005-769	Amends § 15.40.020 (15.40)
BL2005-770	Authorizes the Metropolitan Nashville Fire Department to accept donations upon approval by resolution (Special)
BL2005-771	Accepts donation of a horse for the Metropolitan Police Department (Special)
BL2005-772	Authorizes the donation of a surplus 1981 Massey Ferguson 255 tractor to the Andrew Jackson Police Youth Camp, Inc. (Special)
BL2005-773	Authorizes participation with project no. 05-SL-47 (Special)
BL2005-774	Abandons portion of public right-of-way easement (Special)
BL2005-775	Abandons portion of sanitary sewer line and easement (Special)
BL2005-776	(Withdrawn)
BL2005-777	(Withdrawn)
BL2005-778	Amends official street and alley acceptance and maintenance map (Special)
BL2005-779	Amends official street and alley acceptance and maintenance map (Special)
BL2005-780	Amends geographical information systems map (Special)
BL2005-781	Authorizes Christ Church Cathedral the privilege to construct, install and maintain two light poles (Special)
BL2005-782	Authorizes participation with project no. 04-SL-85B (Special)
BL2005-783	Authorizes participation with project no. 04-SL-85A (Special)
BL2005-784	Authorizes the mayor to execute a contract with the State of Tennessee Department of Transportation (Special)
BL2005-785	Authorizes the mayor to execute a contract with the State of Tennessee Department of Transportation (Special)
BL2005-786	Authorizes the mayor to execute a contract with the State of Tennessee Department of Transportation (Special)
BL2005-787	Authorizes the mayor to execute a contract with CSX Transportation, Inc. and the State of Tennessee (Special)
BL2005-788	Readopts code (1.01)
BL2005-789	Authorizes the director of the division of public property administration and the director of parks and recreation, or his designee, to accept and record easements from the Donelson Christian, Inc. (Special)
BL2005-790	Authorizes the director of the division of public property administration and the director of parks and recreation, or his designee, to accept and record easements from the Donelson Civitan Foundation (Special)
BL2005-791	Authorizes the director of the division of public property administration and the director of parks and recreation, or his designee, to accept, execute and record the agreement for dedication of easement with Unifirst Corporation (Special)
BL2005-792	Authorizes participation with project no. 04-SL-125 (Special)
BL2005-793	Authorizes participation with project no. 05-SL-93 (Special)
BL2005-794	Approves a contract for services performed by the Metropolitan Government of Nashville and Davidson County for the Emergency Communications District (Special)
BL2005-795	Amends official street and alley acceptance and maintenance map (Special)
BL2005-796	Amends §§ 16.20.140, 16.20.150 (16.20) and § 16.08.010.C. (16.08)
Amdt. 1	Amends § 2, subsection A., of Ord. BL2005-796 (16.20)
BL2005-797	Approves Jefferson Street Redevelopment Plan (Special)
Amdt. 1	Amends § 1 of Ord. BL2005-797 (Special)
Amdt. 2	Repeals Amdt. 1 of Ord. BL2005-797 (Special)
BL2005-798	Approves Amendment No. 3 to the Phillips-Jackson Street Redevelopment Plan (Special)
BL2005-799	Authorizes acquisition of property (Special)
BL2005-800	Amends official zoning map (Special)
BL2005-801	Amends official zoning map (Special)
BL2005-802	Amends official zoning map (Special)
BL2005-803	Amends official zoning map (Special)
BL2005-804	Amends official zoning map (Special)
BL2005-805	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-805 by adding condition (Special)
BL2005-806	Amends official zoning map (Special)
BL2005-807	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2005-808	Amends official zoning map (Special)
BL2005-809	Amends official zoning map (Special)
BL2005-810	Amends official zoning map (Special)
BL2005-811	Amends official zoning map (Special)
BL2005-812	Amends official zoning map (Special)
BL2005-813	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-813 by renumbering §§ 2, 3 as 3, 4 and adding new § 2 (Special)
BL2005-814	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-814 by deleting certain parcels to be rezoned and substituting sketch (Special)
BL2005-815	Amends official zoning map (Special)
BL2005-816	Amends official zoning map (Special)
Amdt. 1	Amends zoning classification in caption and § 1 of Ord. BL2005-816 (Special)
BL2005-817	Amends official zoning map (Special)
BL2005-818	Amends official zoning map (Special)
BL2005-819	Amends official zoning map (Special)
BL2005-820	Amends official zoning map (Special)
BL2005-821	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-821 by adding condition (Special)
BL2005-822	Amends official zoning map (Special)
BL2005-823	Amends official zoning map (Special)
BL2005-824	Amends official zoning map (Special)
BL2005-825	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-825 by renumbering § 3 as § 4, amending caption, § 1 and substituting sketch (Special)
BL2005-826	Amends official zoning map (Special)
BL2005-827	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2005-827 (Special)
BL2005-828	Amends official zoning map (Special)
BL2005-829	Amends official zoning map (Special)
BL2005-830	Amends official zoning map (Special)
BL2005-831	Amends official zoning map (Special)
BL2005-832	Amends Bedford Avenue Urban Design Overlay District (Special)
BL2005-833	Amends Hillsboro Village Urban Design Overlay District (Special)
BL2005-834	(Failed)
BL2005-835	Amends official zoning map (Special)
BL2005-836	Establishes program to provide assistance to low-income elderly residents for fiscal year 2005—2006 (Special)
BL2005-837	(Withdrawn)
BL2005-838	(Failed)
BL2005-839	Authorizes the director of the division of public property administration and the director of parks and recreation to accept, execute and record easements in connection with development of the Harpeth River greenway (Special)
BL2005-840	Authorization to enter into lease agreement with Greensboro I, a Tennessee Limited Partnership (Special)
BL2005-841	(Withdrawn)
BL2005-842	(Withdrawn)
BL2005-843	Amends § 3.24.020.D. (3.24)
BL2005-844	Amends § 15.12.070 (15.12)
BL2005-845	(Withdrawn)
BL2005-846	Approves disposition of a parcel of surplus property (Special)
BL2005-847	Amends official street and alley acceptance and maintenance map (Special)
BL2005-848	Authorizes acceptance of an easement (Special)
BL2005-849	Abandons portion of drainage easement (Special)
BL2005-850	Authorizes acquisition of property (Special)
BL2005-851	Authorizes participation agreement with Yazdian Construction Co., to provide public sewer services (Special)
BL2005-852	Approves and accepts contribution from Tyler Ring for traffic infrastructure improvements at Cato Road (Special)
BL2005-853	Approves and accepts contribution from Lenox Village for traffic infrastructure improvements at Holt Road (Special)
BL2005-854	Authorizes the acceptance of certain easements (Special)
BL2005-855	Authorizes the acceptance of certain easements (Special)
BL2005-856	Amends official zoning map (Special)
BL2005-857	Authorizes mayor to submit annual plan update to the consolidated plan for housing and community development (Special)
BL2005-858	Amends § 4.12.095 (4.12)
Amdt. 1	Amends § 1, subsection C., of Ord. BL2005-858 (4.12)
BL2005-859	Amends § 8.12.060 and adds § 8.12.080 (8.12)
BL2005-860	(Withdrawn)
BL2005-861	(Withdrawn)
BL2005-862	(Withdrawn)
BL2005-863	(Withdrawn)
BL2005-864	Adds § 17.40.410.F. (17.40)
BL2005-865	(Withdrawn)
BL2005-866	Amends § 7.08.105.C (7.08)

Ordinance Number	Disposition
BL2005-867	Amends § 15.12.020 (15.12) and § 15.48.020.A., B. (15.48)
BL2005-868	Amends Ord. 94-1192 by permitting change in control of the telecommunications franchise granted to MCImetro Access Transmission Services LLC (Special)
Amdt. 1	Repeals and replaces § 1 and amends § 2 of Ord. BL2005-868 (Special)
BL2005-869	Authorizes the acceptance of certain easements (Special)
BL2005-870	Authorizes the acquisition of easements (Special)
BL2005-871	Authorizes the Metropolitan government to enter into utility relocation contract no. 5997, supplement # 1, with the Tennessee Department of Transportation (Special)
BL2005-872	Amends official street and alley acceptance and maintenance map (Special)
BL2005-873	(Withdrawn)
BL2005-874	(Withdrawn)
BL2005-875	Approves Amendment No. 5 to the Rutledge Hill Redevelopment Plan (Special)
BL2005-876	Amends § 2.96.020.A (2.96)
BL2005-877	(Withdrawn)
BL2005-878	Authorizes the acquisition of certain property (Special)
Amdt. 1	Amends the fourth recital clause and § 4 of Ord. BL2005-878 (Special)
BL2005-879	Approves memorandum of understanding (Special)
BL2005-880	Amends official street and alley acceptance and maintenance map (Special)
BL2005-881	Amends official zoning map (Special)
Amdt. 1	Revises plan referenced in § 1 of Ord. BL2005-881 (Special)
BL2005-882	Amends official zoning map (Special)
BL2005-883	Amends official zoning map (Special)
BL2005-884	Amends official zoning map (Special)
BL2005-885	Amends official zoning map (Special)
BL2005-886	Amends official zoning map (Special)
BL2005-887	Amends official zoning map (Special)
BL2005-888	(Failed)
BL2005-889	Amends official zoning map (Special)
BL2005-890	Amends official zoning map (Special)
BL2005-891	Amends official zoning map (Special)
BL2005-892	Amends official zoning map (Special)
BL2005-893	Amends official zoning map (Special)
BL2005-894	Amends official zoning map (Special)
BL2005-895	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2005-895 (Special)
BL2005-896	Amends official zoning map (Special)
BL2005-897	(Withdrawn)
BL2005-898	(Withdrawn)
BL2005-899	Amends official zoning map (Special)
BL2005-900	Amends official zoning map (Special)
BL2005-901	Amends official zoning map (Special)
BL2005-902	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2005-902 (Special)
BL2005-903	Amends official zoning map (Special)
BL2005-904	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2005-904 by renumbering § 3 as § 4 and adding new § 3 (Special)
BL2005-905	Amends official zoning map (Special)
BL2005-906	Amends official zoning map (Special)
BL2005-907	Amends official zoning map (Special)
Amdt. 1	Repeals and replaces § 3 and adds § 4 of Ord. BL2005-907 (Special)
BL2005-908	Amends official zoning map (Special)
BL2005-909	(Withdrawn)
BL2005-910	Amends §§ 17.40.290, 17.40.350 (17.40)
BL2005-911	(Withdrawn)
BL2005-912	Amends § 15.68.030 (15.68)
BL2005-913	Names the newly constructed Gateway Bridge the "Korean War Veterans Memorial Bridge" (Special)
BL2005-914	Amends official zoning map (Special)
BL2005-915	Amends official zoning map (Special)
BL2005-916	Amends official zoning map (Special)
BL2005-917	Amends official zoning map (Special)
BL2005-918	Amends official zoning map (Special)
BL2005-919	(Withdrawn)
BL2005-920	Amends official zoning map (Special)
BL2005-921	Adds § 16.28.040.C. (16.28)
BL2005-922	Adds § 15.32.010.C. (15.32)
Amdt. 1	Amends phrase in § 1 of Ord. BL2005-922 (15.32)
Amdt. 2	Amends § 1 of Ord. BL2005-922 (15.32)
BL2005-923	Accepts donation of furniture and equipment from Davidson County Community Services Agency (Special)
BL2005-924	Authorizes the acquisition of property (Special)
BL2005-925	Authorizes transfer of certain permanent sewer line easements (Special)
BL2005-926	Amends official zoning map (Special)
BL2006-927	(Withdrawn)
BL2006-928	Amends official street and alley acceptance and maintenance map (Special)
BL2006-929	Amends official street and alley acceptance and maintenance map (Special)
BL2006-930	Amends official street and alley acceptance and maintenance map (Special)
BL2006-931	Amends official street and alley acceptance and maintenance map (Special)
BL2006-932	Authorizes the acceptance of certain easements (Special)

Ordinance Number	Disposition
BL2006-933	Authorizes the acceptance of certain easements (Special)
BL2006-934	Authorizes the acceptance of certain easements (Special)
BL2006-935	Authorizes the acceptance of certain easements (Special)
BL2006-936	Amends § 16.28.190 (16.28)
Amdt. 1	Amends § 1 of Ord. BL2006-936 (16.28)
BL2006-937	(Withdrawn)
BL2006-938	Sale of certain surplus property (Special)
Amdt. 1	Amends § 1 of Ord. BL2006-938 by deleting property from list of surplus properties (Special)
Amdt. 2	Amends § 1 of Ord. BL2006-938 by deleting property from list of surplus properties (Special)
BL2006-939	Abandons portion of certain water line and easement (Special)
BL2006-940	Abandons portion of certain sanitary sewer line and easement (Special)
BL2006-941	Abandons portion of certain sanitary sewer line and easement (Special)
BL2006-942	Abandons portion of certain water line and easement (Special)
BL2006-943	Abandons portion of sanitary sewer easement (Special)
BL2006-944	Authorizes the acquisition of easements (Special)
BL2006-945	Authorizes the acquisition of easements (Special)
BL2006-946	Abandons portion of sanitary sewer line and easement (Special)
BL2006-947	Abandons portion of sanitary sewer line and easement (Special)
BL2006-948	Abandons portion of sanitary sewer easement (Special)
BL2006-949	Abandons portion of sanitary sewer line and easement (Special)
BL2006-950	Authorizes the acquisition of easements (Special)
BL2006-951	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-952	Authorizes participation with project no. 05-SL-32 (Special)
BL2006-953	Abandons portion of sanitary sewer, water line and easement (Special)
BL2006-954	Adds § 2.10.070 (2.10)
BL2006-955	Amends official zoning map (Special)
BL2006-956	(Withdrawn)
BL2006-957	Amends official zoning map (Special)
BL2006-958	(Withdrawn)
BL2006-959	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2006-959 by deleting specific parcels (Special)
BL2006-960	Amends official zoning map (Special)
BL2006-961	Amends official zoning map (Special)
BL2006-962	Amends official zoning map (Special)
BL2006-963	Amends official zoning map (Special)
BL2006-964	Amends official zoning map (Special)
BL2006-965	Amends official zoning map (Special)
BL2006-966	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2006-966 by deleting specific parcels and substituting new sketch (Special)
BL2006-967	Amends official zoning map (Special)
BL2006-968	Amends official zoning map (Special)
BL2006-969	Amends official zoning map (Special)
BL2006-970	Amends official zoning map (Special)
BL2006-971	Amends § 17.04.060.B., Tables 17.12.020A, 17.12.030B; adds Table 17.12.020B.1 and §§ 17.12.100, 17.12.110 (17.04, 17.12)
BL2006-972	Amends §§ 17.04.060, 17.08.030, 17.16.070, 17.16.090.C., Tables 17.20.030, 17.20.070 (17.04, 17.08, 17.20)
Amdt. 1	Amends § 1, subsections 1 and 3, of Ord. BL2006-972 (17.04)
BL2006-973	Amends §§ 17.04.060, 17.08.030, 17.16.070, Table 17.20.030 (17.04, 17.08, 17.16, 17.20)
Amdt. 1	Amends § 3, subsection 2, of Ord. BL2006-973 (17.16)
BL2006-974	(Withdrawn)
BL2006-975	Amends §§ 17.12.070.B.2., 17.36.090.B.3. (17.12, 17.36)
BL2006-976	Amends official zoning map (Special)
BL2006-977	Amends official zoning map (Special)
BL2006-978	Amends official zoning map (Special)
BL2006-979	Names the Howard Office Complex the "Richard H. Fulton Complex" (Special)
BL2006-980	(Withdrawn)
BL2006-981	(Withdrawn)
BL2006-982	(Withdrawn)
BL2006-983	Amends official street and alley acceptance and maintenance map (Special)
BL2006-984	Amends official street and alley acceptance and maintenance map (Special)
BL2006-985	Authorizes participation with project no. 04-SL-185 (Special)
BL2006-986	Authorizes the acquisition of easements (Special)
BL2006-987	Authorizes the acquisition of easements (Special)
BL2006-988	Authorizes the acquisition of easements (Special)
BL2006-989	Approves disposition of a parcel of surplus property (Special)
BL2006-990	Approves disposition of a parcel of surplus property (Special)

Ordinance Number	Disposition
BL2006-991	Abandons portion of certain sanitary sewer line and easement (Special)
BL2006-992	(Withdrawn)
BL2006-993	Authorizes the acquisition of property (Special)
BL2006-994	Authorizes participation with project no. 05-SL-100 (Special)
BL2006-995	Amends official street and alley acceptance and maintenance map (Special)
BL2006-996	Amends official street and alley acceptance and maintenance map (Special)
BL2006-997	Amends geographical information systems map (Special)
BL2006-998	(Withdrawn)
BL2006-999	(Withdrawn)
BL2006-1000	Approves supplemental agreement no. NWR UEW-2005-1 (Special)
BL2006-1001	Renewal of water easement (Special)
BL2006-1002	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1003	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1004	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1005	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1006	Authorizes acquisition of property (Special)
BL2006-1007	(Withdrawn)
BL2006-1008	Abandons portion of certain sanitary sewer line and easement (Special)
BL2006-1009	Abandons portion of certain sanitary sewer line and easement (Special)
BL2006-1010	Abandons portion of certain sanitary sewer line and easement (Special)
BL2006-1011	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1012	Adds § 4.04.080 (4.04)
BL2006-1013	(Failed)
BL2006-1014	(Withdrawn)
BL2006-1015	Authorizes certain departments, boards, and commissions to accept donations valued at less than or equal to $5,000.00 and providing for council approval by resolution for acceptance of donations valued at more the $5,000.00 (Special)
Amdt. 1	Amends Ord. BL2006-1015 § 1, deletes § 2, and renumbers § 3 as § 2 (Special)
BL2006-1016	(Withdrawn)
BL2006-1017	Approves agreement with the University of Massachusetts (Special)
BL2006-1018	Authorizes the execution of agreement no. 600,044 (Special)
BL2006-1019	Approves disposition of a parcel of surplus property (Special)
BL2006-1020	Approves disposition of parcels of surplus property (Special)
BL2006-1021	Authorizes the acceptance of certain easements (Special)
BL2006-1022	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1023	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1024	Amends official zoning map (Special)
BL2006-1025	Amends official zoning map (Special)
BL2006-1026	Amends official zoning map (Special)
BL2006-1027	Amends official zoning map (Special)
BL2006-1028	Amends official zoning map (Special)
BL2006-1029	(Withdrawn)
BL2006-1030	Amends official zoning map (Special)
BL2006-1031	(Withdrawn)
BL2006-1032	Amends official zoning map (Special)
BL2006-1033	Amends official zoning map (Special)
Amdt. 1	Revises plan referenced in § 1 of Ord. BL2006-1033 (Special)
BL2006-1034	Amends official zoning map (Special)
BL2006-1035	Amends official zoning map (Special)
BL2006-1036	Amends official zoning map (Special)
Amdt. 1	Amends zoning designation in caption and § 1 of Ord. BL2006-1036 (Special)
BL2006-1037	Amends official zoning map (Special)
BL2006-1038	(Withdrawn)
BL2006-1039	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2006-1039 (Special)
BL2006-1040	Amends official zoning map (Special)
BL2006-1041	Amends official zoning map (Special)
BL2006-1042	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2006-1042 by adding conditions (Special)
Amdt. 2	Amends Amdt. 1 of Ord. BL2006-1042 (Special)
BL2006-1043	(Tabled)
BL2006-1044	(Withdrawn)
BL2006-1045	Amends § 17.28.030.A.1.b., c. (17.28)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2006-1045 (17.28)
BL2006-1046	(Withdrawn)
BL2006-1047	Amends Tables 17.12.020B, 17.12.020C, 17.12.030B and § 17.12.035.A.; adds §§ 17.12.035.D. and 17.12.060.F. (17.12)
Amdt. 1	Amends §§ 1—5 of Ord. BL2006-1047 (17.12)
BL2006-1048	(Withdrawn)
BL2006-1049	(Withdrawn)
BL2006-1050	Adds § 2.68.030 (2.68)
BL2006-1051	Amends § 17.40.120.F.1. (17.40)

Ordinance Number	Disposition
Amdt. 1	Repeals and replaces § 1 of Ord. BL2006-1051 (17.40)
Amdt. 2	Amends § 1 of Ord. BL2006-1051 (17.40)
BL2006-1052	Authorizes the execution of agreement no. 600,043 (Special)
BL2006-1053	Names Fire Station No. 39 the "B.R. Hall, Sr. Station" (Special)
BL2006-1054	Amends §§ 3.28.010.A., B., and 3.29.010.A., B. (3.28, 3.29)
BL2006-1055	Authorizes the acceptance of the donation of property located at 136 Una Recreational Park Drive (Special)
BL2006-1056	Authorizes the mayor to execute a contract with CSX Transportation Inc. and Beazer Homes Corporation (Special)
BL2006-1057	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1058	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1059	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends § 1 of Ord. BL2006-1059 (Special)
BL2006-1060	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1061	(Withdrawn)
BL2006-1062	Amends § 6.72.340 (6.72)
BL2006-1063	Adds § 6.72.250.E. (6.72)
Amdt. 1	Amends § 1 of Ord. BL2006-1063 (6.72)
BL2006-1064	(Tabled)
BL2006-1065	(Withdrawn)
BL2006-1066	(Withdrawn)
BL2006-1067	Amends § 16.24.190 (16.24)
BL2006-1068	(Withdrawn)
BL2006-1069	Amends § 16.28.040.C. (16.28)
BL2006-1070	Authorizes participation with project no. 05-SL-114A (Special)
BL2006-1071	Authorizes participation with project no. 05-SL-184 (Special)
BL2006-1072	Abandons portion of sanitary sewer line and easement (Special)
BL2006-1073	Abandons portion of sanitary sewer line and easement (Special)
BL2006-1074	Abandons portion of sanitary sewer line and easement (Special)
BL2006-1075	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1076	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1077	Authorizes the acquisition of property (Special)
BL2006-1078	Authorizes the acquisition of property (Special)
BL2006-1079	Approves disposition of a parcel of surplus property (Special)
Amdt. 1	Adds two recitals prior to the last recital of Ord. BL206-1079 (Special)
BL2006-1080	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1081	Amends official zoning map (Special)
BL2006-1082	Amends official zoning map (Special)
BL2006-1083	Amends official zoning map (Special)
BL2006-1084	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1084 by deleting certain parcels to be rezoned
BL2006-1085	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1085 by deleting certain parcel to be rezoned
BL2006-1086	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1086 by deleting certain parcels to be rezoned
BL2006-1087	Amends § 17.04.060 and Table 17.20.030; adds §§ 17.12.040.F. and 17.20.135 (17.04, 17.12, 17.20)
BL2006-1088	(Withdrawn)
BL2006-1089	Capital improvements budget and program 2006—2007 through 2011—2012 (Special)
BL2006-1090	Fiscal year 2007 budget (Special)
Amdt. 1	Amends Ord. BL2006-1090 (Special)
Amdt. 9	Amends Ord. BL2006-1090 (Special)
Amdt. 10	Amends Ord. BL2006-1090 (Special)
Amdt. 11	Amends Ord. BL2006-1090 (Special)
Amdt. 12	Amends Article I of Ord. BL2006-1090 (Special)
Amdt. 13	Amends Article I of Ord. BL2006-1090 (Special)
Amdt. 14	Amends Ord. BL2006-1090 (Special)
BL2006-1091	Establishes tax levy in the General Services District for the fiscal year 2006—2007 (Special)
BL2006-1092	Amends §§ 2.56.135, 2.56.530 (2.56)
BL2006-1093	Amend Ord. No. BL2001-777 (Special)
BL2006-1094	Repeals § 6.80.550.A.4.; adds § 6.80.550.C.4; amends § 12.72.040 (6.80, 12.72)
Amdt. 1	Repeals and replaces § 2 of Ord. BL2006-1094 (6.80)
BL2006-1095	Repeals § 15.32.040; adds § 15.20.045; amends §§ 15.36.040.A., 15.48.090 (15.20, 15.32, 15.36, 15.48)
Amdt. 1	Amends §§ 2 and 3 of Ord. BL2006-1095 (15.20, 15.36)
Amdt. 2	Repeals Amdt. 1; amends § 2; renumbers § 5 as § 7 and adds new §§ 5 and 6 of Ord. BL2005-797 (15.20, 15.36)
Amdt. 3	Repeals and replaces § 1 of Ord. BL2006-1095 (15.32)
BL2006-1096	Adds § 3.08.260 (3.08)

Ordinance Number	Disposition
BL2006-1097	(Withdrawn)
BL2006-1098	(Withdrawn)
BL2006-1099	Agreement between the Metropolitan Government and the State of Tennessee, Department of Finance and Administration, relating to the installation of certain safety equipment for the District Energy System (Special)
BL2006-1100	Authorizes participation with project no. 05-SL-56 (Special)
BL2006-1101	Authorizes participation with project no. 05-SL-114 (Special)
BL2006-1102	Authorizes participation with project no. 05-SL-47D (Special)
BL2006-1103	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1104	Amends official zoning map (Special)
BL2006-1105	Amends official zoning map (Special)
BL2006-1106	Amends official zoning map (Special)
BL2006-1107	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1107 by renumbering §§ 2, 3 as §§ 3, 4 and inserting new § 2 (Special)
BL2006-1108	Amends official zoning map (Special)
BL2006-1109	Amends official zoning map (Special)
BL2006-1110	(Withdrawn)
BL2006-1111	Amends official zoning map (Special)
BL2006-1112	Amends official zoning map (Special)
BL2006-1113	Amends official zoning map (Special)
BL2006-1114	(Failed)
BL2006-1115	Amends official zoning map (Special)
BL2006-1116	(Withdrawn)
BL2006-1117	Amends official zoning map (Special)
BL2006-1118	Amends official zoning map (Special)
BL2006-1119	Authorizes the acquisition of property (Special)
BL2006-1120	Adopts property identification maps (Special)
BL2006-1121	Amends official zoning map (Special)
BL2006-1122	Amends official zoning map (Special)
BL2006-1123	Adds §§ 2.176.010—2.176.090 (2.176)
Amdt. 1	Amends § 1 of Ord. BL2006-1123 (2.176)
BL2006-1124	Adds § 15.12.055 (15.12)
BL2006-1125	Names new head start center "Susan Gray Head Start Center" (Special)
BL2006-1126	Requires all brochures, pamphlets, and reports published for distribution outside of a particular department state the number of items printed and the cost per unit (Special)
Amdt. 1	Amends § 1 of Ord. BL2006-1126 (Special)
BL2006-1127	Authorizes participation with project no. 05-SL-174 (Special)
BL2006-1128	(Failed)
BL2006-1129	Authorizes participation with project no. 05-SL-66 (Special)
BL2006-1130	Authorizes the director of public property, or his designee, and the director of parks and recreation, or his designee, to accept and record an easement (Special)
BL2006-1131	Renewal of easement (Special)
BL2006-1132	Abandons portion of sanitary sewer line and easement (Special)
BL2006-1133	Amends official zoning map (Special)
BL2006-1134	Amends official zoning map (Special)
BL2006-1135	(Withdrawn)
BL2006-1136	Adds § 4.40.060 (4.40)
Amdt. 1	Amends § 1 of Ord. BL2006-1136 (4.40)
BL2006-1137	(Withdrawn)
BL2006-1138	Amends § 11.12.070.A., B. (11.12)
Amdt. 1	Amends § 1 of Ord. BL2006-1138
BL2006-1139	(Withdrawn)
BL2006-1140	Authorizes the director of the division of public property and the director of parks and recreation, or his designee, to accept, execute and record an agreement accepting a grant easement from the State of Tennessee (Special)
BL2006-1141	Abandons portion of sanitary sewer, water line and easement (Special)
BL2006-1142	Abandons portion of public utility drainage easement (Special)
BL2006-1143	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1144	(Withdrawn)
BL2006-1145	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1145 by deleting certain parcels to be rezoned (Special)
BL2006-1146	Amends official zoning map (Special)
BL2006-1147	(Withdrawn)
BL2006-1148	Amends official zoning map (Special)
Amdt. 1	Amends zoning classification in caption and § 1 of Ord. BL2006-1148 (Special)
BL2006-1149	Amends official zoning map (Special)
BL2006-1150	Amends official zoning map (Special)
BL2006-1151	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1151 by renumbering § 4 as § 5 and inserting new § 4 (Special)
BL2006-1152	Amends official zoning map (Special)
BL2006-1153	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2006-1153 (Special)
BL2006-1154	Amends official zoning map (Special)
BL2006-1155	(Withdrawn)
BL2006-1156	(Withdrawn)
BL2006-1157	Amends official zoning map (Special)
BL2006-1158	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2006-1159	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2006-1159 (Special)
BL2006-1160	(Withdrawn)
BL2006-1161	Amends official zoning map (Special)
BL2006-1162	Amends official zoning map (Special)
BL2006-1163	Amends official zoning map (Special)
BL2006-1164	Amends official zoning map (Special)
BL2006-1165	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2006-1165 and substitutes new sketch (Special)
BL2006-1166	Amends official zoning map (Special)
BL2006-1167	Amends official zoning map (Special)
BL2006-1168	Amends official zoning map (Special)
BL2006-1169	Amends official zoning map (Special)
BL2006-1170	(Withdrawn)
BL2006-1171	Amends § 17.04.060 (17.04)
BL2006-1172	(Withdrawn)
BL2006-1173	Amends § 17.40.740.C.2 (17.40)
BL2006-1174	(Failed)
BL2006-1175	(Withdrawn)
BL2006-1176	Establishes program to provide assistance to low-income elderly residents for fiscal year 2006—2007 (Special)
BL2006-1177	(Withdrawn)
BL2006-1178	(Defeated)
BL2006-1179	Amends § 3.04.010.A. (3.04)
BL2006-1180	Amends § 3.08.110.E. (3.08)
Amdt. 1	Amends § 1 of Ord. BL2006-1180 (3.08)
BL2006-1181	(Withdrawn)
BL2006-1182	Authorizes participation with project no. 05-SL-174A (Special)
BL2006-1183	Abandons portion of certain sanitary sewer line and easement (Special)
BL2006-1184	Abandons portion of certain sanitary sewer line and easement (Special)
BL2006-1185	(Vetoed)
BL2006-1186	Amends § 15.44.050.B., D. (15.44)
BL2006-1187	Adds § 16.24.330.P. (16.24)
BL2006-1188	Amends § 1 of Ord. BL2006-1096 (Special)
BL2006-1189	Authorizes the acceptance of a donated horse for use and benefit of the police department (Special)
BL2006-1190	Authorizes the acceptance of a completed bridge (Special)
BL2006-1191	Authorizes participation with project no. 06-SL-2 (Special)
BL2006-1192	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1193	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1194	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1195	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1196	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1197	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1197 by deleting certain parcels to be rezoned (Special)
BL2006-1198	(Withdrawn)
BL2006-1199	Amends official zoning map (Special)
BL2006-1200	Amends official zoning map (Special)
BL2006-1201	Amends official zoning map (Special)
BL2006-1202	Amends official zoning map (Special)
BL2006-1203	Amends official zoning map (Special)
BL2006-1204	Amends official zoning map (Special)
BL2006-1205	Amends official zoning map (Special)
BL2006-1206	(Withdrawn)
BL2006-1207	Adds § 4.20.065 (4.20)
BL2006-1208	Amends § 8.12.030.C.; adds § 8.12.030.F.—H. (8.12)
Amdt. 1	Repeals and replaces § 2 of Ord. BL2006-1208 (8.12)
BL2006-1209	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1210	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1211	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1212	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Repeals and replaces § 4 of Ord. BL2006-1212 (Special)
BL2006-1213	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1214	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1215	Amends official zoning map (Special)
BL2006-1216	Amends official zoning map (Special)
BL2006-1217	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1217 caption, § 1, renumbers § 3 as § 4 and adds new § 3, and substitutes new sketch (Special)
BL2006-1218	Amends official zoning map (Special)
BL2006-1219	Amends official zoning map (Special)
BL2006-1220	Amends official zoning map (Special)
BL2006-1221	Amends official zoning map (Special)
BL2006-1222	Amends official zoning map (Special)
BL2006-1223	Amends official zoning map (Special)
BL2006-1224	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2006-1224 (Special)
BL2006-1225	(Withdrawn)
BL2006-1226	Amends official zoning map (Special)
BL2006-1227	(Withdrawn)
BL2006-1228	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2006-1229	Amends official zoning map (Special)
BL2006-1230	Approves disposition of a certain parcel of property (Special)
BL2006-1231	(Withdrawn)
BL2006-1232	Repeals § 3.08.040.I. (3.08) Adds §§ 2.40.210—2.40.260 (2.40)
BL2006-1233	(Failed)
BL2006-1234	(Withdrawn)
BL2006-1235	(Withdrawn)
BL2006-1236	Amends § 6.80.330.A. (6.40)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2006-1236
BL2006-1237	(Withdrawn)
BL2006-1238	(Withdrawn)
BL2006-1239	Adds §§ 15.04.105, 15.04.235, 15.04.236, 15.04.325, 15.04.345, 15.04.435, 15.40.120; amends §§ 15.16.030, 15.16.140, 15.16.160, 15.16.180—15.16.230, 15.40.020, 15.40.040, 15.40.050, 15.40.070, 15.40.080, 15.40.110; repeals §§ 15.16.170, 15.40.030, 15.40.060 (15.04, 15.16, 15.40)
Amdt. 1	Amends § 12 of Ord. BL2006-1239 (15.40)
BL2006-1240	Authorizes participation with project no. 98-SL-192 (Special)
BL2006-1241	Authorizes participation with project no. 05-SL-63 (Special)
BL2006-1242	Authorizes maintenance agreement with TWD I Partnership (Special)
BL2006-1243	Approves disposition of a parcel of surplus property (Special)
BL2006-1244	Accepts donation of property (Special)
BL2006-1245	Authorizes acceptance of certain easements (Special)
BL2006-1246	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1247	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1248	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1249	Authorizes the acquisition of easements (Special)
BL2007-1250	(Withdrawn)
BL2006-1251	Abandons portion of water line and easement (Special)
BL2006-1252	Abandons portion of sanitary sewer line and easement (Special)
BL2006-1253	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1253 by renumbering § 3 as § 4 and inserting new § 3 (Special)
BL2006-1254	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1254 by renumbering § 3 as § 4 and inserting new § 3 (Special)
BL2006-1255	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2006-1255 (Special)
Amdt. 2	Amends Ord. BL2006-1255 by renumbering § 3 as § 4 and inserting new § 3 (Special)
BL2006-1256	Amends official zoning map (Special)
BL2006-1257	(Defeated)
BL2006-1258	Amends official zoning map (Special)
BL2006-1259	(Withdrawn)
BL2006-1260	Amends Table 17.08.030 (17.08)
BL2006-1261	Adds § 2.44.115 (2.44)
Amdt. 1	Amends § 1 of Ord. BL2006-1261 (2.44)
BL2006-1262	(Withdrawn)
BL2006-1263	Adds § 16.28.040.D. (16.28)
Amdt.1	Amends § 1 of Ord. BL2006-1263 (16.28)
BL2006-1264	Authorizes the acquisition of property (Special)
BL2006-1265	(Withdrawn)
BL2006-1266	Amending Ord. BL2006-1093 (Special)
Amdt. 1	Amends § 1 of Ord. BL2006-1266 (Special)
BL2006-1267	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1268	Acceptance of contribution for traffic infrastructure improvements (Special)
BL2006-1269	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1270	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1271	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1272	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2006-1273	Abandons portion of sanitary sewer line, manhole and easement (Special)
BL2006-1274	Abandons portion of sanitary sewer line and easement (Special)
BL2006-1275	Abandons portion of sanitary sewer line and easement (Special)
BL2006-1276	Abandons portion of sanitary sewer line, water line and easement (Special)
BL2006-1277	Authorizes participation with project no. 06-SL-0048 (Special)
BL2006-1278	Authorizes participation with project no. 06-SL-137 (Special)
BL2006-1279	Authorizes participation with project no. 04-SL-85C (Special)
BL2006-1280	Authorizes participation with project no. 06-SL-35 (Special)
BL2006-1281	Authorizes participation with project no. 05-SL-114B (Special)

Ordinance Number	Disposition
BL2006-1282	Authorizes mayor to submit annual update to the consolidated plan for housing and community development programs (Special)
BL2006-1283	Amends §§ 17.04.060, Table 17.08.030; repeals §§ 17.12.040.F., 17.20.135; adds § 17.16.070.L.; renumbers § 17.16.070.L.—P. as M.—Q (17.04, 17.08, 17.12, 17.16, 17.20)
Amdt. 1	Amends §§ 1 and 4 of Ord. BL2006-1283 (17.04, 17.16)
BL2006-1284	(Withdrawn)
BL2006-1285	(Withdrawn)
BL2006-1286	Amends official zoning map (Special)
BL2006-1287	Adopts Code § 1.01.010; amends § 1.01.050 (1.01)
BL2006-1288	Amends § 3.24.020.D. (3.24)
BL2006-1289	Abandons portion of public utility drainage easement (Special)
BL2006-1290	(Withdrawn)
BL2006-1291	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2006-1291 (Special)
BL2006-1292	(Withdrawn)
BL2006-1293	Amends official zoning map (Special)
BL2006-1294	Amends official zoning map (Special)
BL2006-1295	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1295 by amending portions of the Urban Design Overlay Plan (Special)
Amdt. 2	Repeals and replaces § 3 of Ord. BL2006-1295 (Special)
BL2006-1296	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2006-1296 (Special)
BL2006-1297	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1297 by adding §§ 3, 4 and renumbering accordingly (Special)
BL2006-1298	Amends official zoning map (Special)
BL2006-1299	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1299 by deleting certain parcels to be rezoned (Special)
BL2006-1300	Amends official zoning map (Special)
BL2006-1301	Amends official zoning map (Special)
BL2006-1302	Amends official zoning map (Special)
BL2006-1303	Amends official zoning map (Special)
BL2006-1304	Amends official street and alley acceptance and maintenance map (Special)
BL2006-1305	Authorizes participation with project no. 04-SL-190 (Special)
BL2006-1306	Authorizes the director of public property to exercise an option to purchase real property (Special)
Amdt. 1	Amends second recital clause and Exhibits A and B of Ord. BL2006-1306 (Special)
BL2007-30	Amends official zoning map (Special)
BL2007-85	(Withdrawn)
BL2007-86	(Withdrawn)
BL2007-1307	(Failed)
BL2007-1308	Adds § 12.52.150 (12.52)
BL2006-1309	Amends § 13.08.015.D.2 (13.08)
BL2007-1310	Authorizes property tax exemption (Special)
BL2007-1311	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2006-1311 by deleting certain parcels to be rezoned (Special)
BL2007-1312	Adds §§ 2.177.010—2.177.090 (2.177)
Amdt. 1	Amends Ord. BL2007-1312 by renumbering § 3 as § 4 and inserting new § 3 (2.174)
BL2007-1313	Abandons portion of sanitary sewer line and easement (Special)
BL2007-1314	Amends official zoning map (Special)
BL2007-1315	Amends official zoning map (Special)
BL2007-1316	Amends § 8.08.030 (8.08)
Amdt. 1	Amends § 1 of Ord. BL2007-1316 (8.08)
BL2007-1317	(Withdrawn)
BL2007-1318	Repeals §§ 2.24.100, 2.24.101, 2.24.102; adds § 2.24.300 (2.24)
BL2007-1319	(Withdrawn)
BL2007-1320	Authorizes Nashville Data Link, Inc. to construct, install and maintain telecommunications cables (Special)
BL2007-1321	Approves lease of space for outdoor billboard advertising (Special)
BL2007-1322	Adopts official street and alley acceptance and maintenance map (Special)
BL2007-1323	Abandons portion of storm sewer line and easement (Special)
BL2007-1324	Abandons portion of sanitary sewer line and easement (Special)
BL2007-1325	Abandons portion of sanitary sewer line and easement (Special)
BL2007-1326	Abandons portion of sanitary sewer line and easement (Special)
BL2007-1327	Abandons portion of public utility easement (Special)
BL2007-1328	Abandons portion of public utility easement (Special)
BL2007-1329	Abandons easements (Special)
BL2007-1330	Authorizes the acquisition of property (Special)
BL2007-1331	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2007-1332	(Withdrawn)
BL2007-1333	Amends official zoning map (Special)
BL2007-1334	Amends official zoning map (Special)
BL2007-1335	Amends official zoning map (Special)
BL2007-1336	Amends official zoning map (Special)
BL2007-1337	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2007-1338	Amends official zoning map (Special)
BL2007-1339	Amends official zoning map (Special)
BL2007-1340	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2007-1340 (Special)
BL2007-1341	Amends official zoning map (Special)
BL2007-1342	Amends official zoning map (Special)
BL2007-1343	Amends official zoning map (Special)
BL2007-1344	Amends official zoning map (Special)
BL2007-1345	Amends official zoning map (Special)
BL2007-1346	Amends official zoning map (Special)
BL2007-1347	Amends official zoning map (Special)
BL2007-1348	Amends official zoning map (Special)
BL2007-1349	Amends official zoning map (Special)
BL2007-1350	Amends official zoning map (Special)
Amdt. 1	Amends the caption, § 1 and the sketch of Ord. BL2007-1350 (Special)
BL2007-1351	(Withdrawn)
BL2007-1352	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2007-1352 (Special)
BL2007-1353	Amends official zoning map (Special)
BL2007-1354	(Withdrawn)
BL2007-1355	Amends official zoning map (Special)
BL2007-1356	Amends official zoning map (Special)
BL2007-1357	Amends official zoning map (Special)
BL2007-1358	Amends official zoning map (Special)
BL2007-1359	(Withdrawn)
BL2007-1360	Amends official zoning map (Special)
BL2007-1361	Amends official zoning map (Special)
BL2007-1362	Amends official zoning map (Special)
BL2007-1363	(Withdrawn)
BL2007-1364	(Withdrawn)
BL2007-1365	Adds § 17.12.090.G. (17.12)
Amdt. 1	Amends § 1 of Ord. BL2007-1365 (17.12)
BL2007-1366	Amends § 17.32.050.H. (17.32)
Amdt. 1	Amends § 1 of Ord. BL2007-1366 (17.32)
BL2007-1367	Adds § 17.40.120.F.1.e.[f.], G.2.m., H. (17.40)
BL2007-1368	(Withdrawn)
BL2007-1369	Adds § 17.12.120 (17.12)
Amdt. 1	Amends § 1 of Ord. BL2007-1369 (17.12)
BL2007-1370	Amends official zoning map (Special)
BL2007-1371	Amends official zoning map (Special)
BL2007-1372	(Vetoed)
BL2007-1373	Amends §§ 16.08.010.B., 16.08.014, 16.16.190.A., 16.16.230, 16.12.140, 16.20.140, 16.20.154, 16.20.150; adds § 16.12.120.C. (16.08, 16.12, 16.16, 16.20)
BL2007-1374	Adds §§ 16.60.010—16.60.100 (16.60)
Amdt. 1	Amends § 1 of Ord. BL2007-1374 (16.60)
BL2007-1375	Authorizes entrance into utility relocation contract no. 6912 (Special)
BL2007-1376	Authorizes participation with project no. 05-SL-47F (Special)
BL2007-1377	Amends official street and alley acceptance and maintenance map (Special)
BL2007-1378	Acceptance of contribution for milling and resurfacing Hillsboro Circle from Abbott Martin Road to Hobbs Road (Special)
BL2007-1379	Acceptance of contribution for a traffic signal at 4317 Harding Pike (Special)
BL2007-1380	(Withdrawn)
BL2007-1381	Amends official street and alley acceptance and maintenance map (Special)
BL2007-1382	Repeals §§ 2.04.050—2.04.100, 2.72.010—2.72.090; adds §§ 2.222.010—2.222.060 (2.04, 2.72, 2.222)
Amdt. 1	Amends § 3 of Ord. BL2007-1382 (2.222)
Amdt. 2	Amends § 3 of Ord. BL2007-1382 (2.222)
Amdt. 3	Amends § 2 of Ord. BL2007-1382 (2.72)
Amdt. 4	Amends § 3 of Ord. BL2007-1382 (2.222)
Amdt. 5	Amends § 3 of Ord. BL2007-1382 (2.222)
BL2007-1383	(Withdrawn)
BL2007-1384	(Withdrawn)
BL2007-1385	(Withdrawn)
BL2007-1386	(Failed)
BL2007-1387	Naming of roundabout right-of-way (Special)
BL2007-1388	Amends §§ 6.100.040, 6.100.060 (6.100)
Amdt. 1	Amends § 1 of Ord. BL2007-1388 (6.100)
BL2007-1389	Adds § 10.32.180 (10.32)
BL2007-1390	Amends §§ 2.28.170, 10.64.010, 10.64.012, 10.64.015, 10.64.017, 16.08.010.A., 16.08.012, 16.08.010.D., 16.08.016, 16.16.190.B., D., 16.16.240, 16.16.260, 16.12.120, 16.12.130, 16.28.080, 16.28.240 (2.28, 10.64, 16.08, 16.12, 16.16, 16.28)
BL2007-1391	Requiring departments, agencies, boards and commissions to respond to requests for information from council members within 30 days (Special)
BL2007-1392	Authorizes acceptance of certain easements (Special)
BL2007-1393	Authorizes acceptance of donation of property (Special)
BL2007-1394	Amends official zoning map (Special)
BL2007-1395	Amends official zoning map (Special)
BL2007-1396	Amends official zoning map (Special)
BL2007-1397	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Amends Ord. BL2007-1397 by substituting new sketch (Special)

Ordinance Number	Disposition
BL2007-1398	Fiscal year 2008 budget (Special)
BL2007-1399	Establishes tax levy in the General Services District for the fiscal year 2007—2008 (Special)
BL2007-1400	(Withdrawn)
BL2007-1401	(Withdrawn)
BL2007-1402	(Withdrawn)
BL2007-1403	Authorizes participation with project no. 06-SL-68 (Special)
BL2007-1404	Amends official street and alley acceptance and maintenance map (Special)
BL2007-1405	Amends official zoning map (Special)
BL2007-1406	Amends official zoning map (Special)
BL2007-1407	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2007-1407 by deleting specific parcels and substituting new sketch (Special)
BL2007-1408	Amends official zoning map (Special)
BL2007-1409	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2007-1409 by renumbering § 7 as § 8 and adding new § 7 (Special)
BL2007-1410	Amends official zoning map (Special)
BL2007-1411	Amends official zoning map (Special)
BL2007-1412	Amends official zoning map (Special)
Amdt. 1	Amends the caption and § 1 of Ord. BL2007-1412 (Special)
BL2007-1413	Amends official zoning map (Special)
BL2007-1414	Amends official zoning map (Special)
BL2007-1415	(Withdrawn)
BL2007-1416	(Withdrawn)
BL2007-1417	Amends official zoning map (Special)
BL2007-1418	Amends official zoning map (Special)
BL2007-1419	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2007-1419 (Special)
BL2007-1420	(Withdrawn)
BL2007-1421	Amends official zoning map (Special)
BL2007-1422	Amends official zoning map (Special)
BL2007-1423	Amends official zoning map (Special)
BL2007-1424	(Disapproved)
BL2007-1425	Amends official zoning map (Special)
BL2007-1426	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2007-1426 (Special)
BL2007-1427	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2007-1427 by deleting specific parcels (Special)
BL2007-1428	Amends official zoning map (Special)
BL2007-1429	(Withdrawn)
BL2007-1430	(Withdrawn)
BL2007-1431	Amends § 17.12.060.C.1. (17.12)
BL2007-1432	Adds § 5.04.075 (5.04)
BL2007-1433	Amending Ord. BL2005-878 (Special)
BL2007-1434	(Withdrawn)
BL2007-1435	Adds § 15.48.170.C.; amends § 15.48.180.A. (15.48)
Amdt. 1	Amends § 2 of Ord. BL2007-1435 (15.48)
BL2007-1436	Adds § 16.24.330.K.5. (16.24)
BL2007-1437	Authorizes entrance into utility relocation contract no. 6272 (Special)
BL2007-1438	Authorizes entrance into utility relocation contract no. 6950 (Special)
BL2007-1439	Amends official street and alley acceptance and maintenance map (Special)
BL2007-1440	Amends § 15.64.010; adds §§ 15.64.015, 15.64.031—15.64.034; amends §§ 15.64.050, 15.64.100, 15.64.110, 15.64.130, 15.64.180, 15.64.200, 15.64.205 (15.64)
Amdt. 1	Amends § 4 of Ord. BL2007-1440 (15.64)
BL2007-1441	Setting rates for sewage transportation and treatment service (Special)
BL2007-1442	Amends § 5.04.012 (5.04)
BL2007-1443	Amends §§ 10.60.020, 10.60.080 (10.60)
BL2007-1444	Approving fee to be charged by the Division of Emergency Ambulance and Rescue Service for transportation of patients to hospitals (Special)
BL2007-1445	Amends § 5.04.020 (5.04)
BL2007-1446	Granting temporary construction easement (Special)
BL2007-1447	Approves agreement with the United States Department of the Army (Special)
BL2007-1448	Adopts Code § 1.01.010 (1.01)
BL2007-1449	Amends § 17.36.070.A. (17.36)
Amdt. 1	Amends § 1 of Ord. BL2007-1449 (17.36)
BL2007-1450	Capital improvements budget and program 2007—2008 through 2012—2013 (Special)
BL2007-1451	Adds § 5.04.076 (5.04)
Amdt. 1	Amends § 1 of Ord. BL2007-1451 (5.04)
Amdt. 2	Amends § 1 of Ord. BL2007-1451 (5.04)
BL2007-1452	(Withdrawn)
BL2007-1453	(Failed)
BL2007-1454	(Withdrawn)
BL2007-1455	(Withdrawn)
BL2007-1456	(Withdrawn)
BL2007-1457	Repeals § 15.32.040; adds § 15.44.060; amends § 15.32.190.B.; adds § 15.24.150; amends Table 15.20.030; adds § 15.20.110; amends §§ 15.20.045, 15.36.040.A., Table 15.36.020; adds §§ 15.48.280, 15.48.290, 15.48.300, 15.60.470, 15.60.480, 15.64.215 (15.20, 15.24, 15.32, 15.36, 15.44, 15.48, 15.60, 15.64)
BL2007-1458	Authorizing acquisition of property (Special)
Amdt. 1	Amends Ord. BL2007-1458 by substituting Exhibit A (Special)
BL2007-1459	(Withdrawn)

Ordinance Number	Disposition
BL2007-1460	Amending Ord. BL2005-582 (Special)
BL2007-1461	Establishing the Criminal Justice Steering Committee (Special)
Amdt. 1	Amends § 2 of Ord. BL2007-1461 (Special)
BL2007-1462	Accepting donation of surveillance camera equipment (Special)
BL2007-1463	Approving contract with Emergency Communications District (Special)
BL2007-1464	Adopting property identification maps (Special)
BL2007-1465	Approves disposition of a parcel of surplus property (Special)
BL2007-1466	Authorizes acceptance of certain easement (Special)
BL2007-1467	Authorizes acceptance of certain easements (Special)
BL2007-1468	Authorizes acceptance of certain easements (Special)
BL2007-1469	Authorizes acceptance of certain easements (Special)
BL2007-1470	Abandons portion of certain sanitary sewer line and easement (Special)
BL2007-1471	Authorizes acceptance of certain easements (Special)
BL2007-1472	Abandons portion of certain sanitary sewer line and easement (Special)
BL2007-1473	Abandons portion of certain sanitary sewer line, water line and two fire hydrants (Special)
BL2007-1474	Abandons portion of certain sanitary sewer line and easement and acceptance of replacement (Special)
BL2007-1475	Authorizes acceptance of certain easements (Special)
BL2007-1476	Authorizes acceptance of certain easements (Special)
BL2007-1477	Authorizes acceptance of certain easements (Special)
BL2007-1478	Authorizes acceptance of certain easements (Special)
BL2007-1479	Authorizes conveyance of water line and associated easement (Special)
BL2007-1480	Authorizes Metal Management Nashville, LLC to install, construct and maintain a railroad spur track crossing encroachment (Special)
BL2007-1481	Amends official street and alley acceptance and maintenance map (Special)
BL2007-1482	Amends official zoning map (Special)
BL2007-1483	Amends official zoning map (Special)
BL2007-1484	(Withdrawn)
BL2007-1485	Amends official zoning map (Special)
BL2007-1486	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2007-1486 by deleting specific parcels (Special)
Amdt. 2	Amends Ord. BL2007-1486 by repealing amendment no. 1 and deleting specific parcels (Special)
BL2007-1487	(Withdrawn)
BL2007-1488	(Withdrawn)
BL2007-1489	(Withdrawn)
BL2007-1490	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2007-1490 (Special)
BL2007-1491	(Withdrawn)
BL2007-1492	(Withdrawn)
BL2007-1493	Amends official zoning map (Special)
BL2007-1494	(Withdrawn)
BL2007-1495	Amends official zoning map (Special)
BL2007-1496	Amends official zoning map (Special)
BL2007-1497	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2007-1497 (Special)
BL2007-1498	(Withdrawn)
BL2007-1499	(Withdrawn)
BL2007-1500	Amends official zoning map (Special)
BL2007-1501	Amends official zoning map (Special)
Amdt. 1	Amends caption, § 1, deletes specific parcels and substitutes sketch of Ord. BL2007-1501 (Special)
BL2007-1502	Amends official zoning map (Special)
BL2007-1503	Amends official zoning map (Special)
BL2007-1504	Amends official zoning map (Special)
BL2007-1505	Amends official zoning map (Special)
BL2007-1506	Amends official zoning map (Special)
BL2007-1507	(Withdrawn)
BL2007-1508	Amends official zoning map (Special)
BL2007-1509	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2007-1509 by adding new § 3 and renumbering accordingly (Special)
Amdt. 2	Amends § 1 of Ord. BL2007-1509 (Special)
BL2007-1510	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2007-1510 by adding new § 3 and renumbering accordingly (Special)
BL2007-1511	Amends official zoning map (Special)
BL2007-1512	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2007-1512 by adding new § 3 and renumbering accordingly (Special)
BL2007-1513	(Withdrawn)
BL2007-1514	Amends official zoning map (Special)
BL2007-1515	Amends official zoning map (Special)
BL2007-1516	Amends official zoning map (Special)
BL2007-1517	Amends official zoning map (Special)
BL2007-1518	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2007-1518 by adding new § 3 and renumbering accordingly (Special)
BL2007-1519	Amends official zoning map (Special)
BL2007-1520	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2007-1521	Amends official zoning map (Special)
BL2007-1522	Amends official zoning map (Special)
BL2007-1523	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2007-1523 (Special)
BL2007-1524	(Withdrawn)
BL2007-1525	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2007-1525 (Special)
BL2007-1526	(Failed)
BL2007-1527	(Withdrawn)
BL2007-1528	Amends official zoning map (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2007-1528 (Special)
Amdt. 2	Amends caption and § 1 of Ord. BL2007-1528 (Special)
BL2007-1529	Amends official zoning map (Special)
BL2007-1530	(Withdrawn)
BL2007-1531	Amends § 17.04.060.B.; adds § 17.12.070.F. (17.04, 17.12)
BL2007-1532	Amends official zoning map (Special)
BL2007-1533	Amends official zoning map (Special)
BL2007-1534	Amends official zoning map (Special)
BL2007-1535	Amends official zoning map (Special)
BL2007-1536	Amends official zoning map (Special)
BL2007-1537	(Withdrawn)
BL2007-1538	Amends official zoning map (Special)
BL2007-1539	Amends official zoning map (Special)
BL2007-1540	(Withdrawn)
BL2007-1541	Amends official zoning map (Special)
BL2007-1542	(Withdrawn)
BL2007-1543	Amends § 17.40.650.D., E.2. (17.40)
Amdt. 1	Amends § 1 of Ord. BL2007-1543 (17.40)
Amdt. 2	Amends § 1 of Ord. BL2007-1543 (17.40)
BL2007-1544	Approves lease agreement (Special)
Amdt. 1	Amends § 1 of Ord. BL2007-1544 (Special)
BL2007-1545	(Failed)
BL2007-1546	Adds §§ 6.06.010—6.06.120 (6.06)
BL2007-1547	Amends § 6.80.020, 6.80.585.B. (6.80)
BL2007-1548	Amends official street and alley acceptance and maintenance map (Special)
BL2007-1549	(Withdrawn)
BL2007-1550	Adds §§ 16.33.010—16.33.160 (16.33)
BL2007-1551	Approves disposition of a parcel of surplus property (Special)
BL2007-1552	(Withdrawn)
BL2007-1553	Amends official street and alley acceptance and maintenance map (Special)
BL2007-1554	Amends official street and alley acceptance and maintenance map (Special)
BL2007-1555	Authorizes hotel occupancy tax (Special)
BL2007-1556	Authorizes the industrial development board to negotiate and accept payments in lieu of ad valorem taxes (Special)
Amdt. 1	Amends recital clause and § 3 of Ord. BL2007-1556 (Special)
BL2007-1557	Amends § 5.12.020, 5.12.060; adds §§ 5.12.110—5.12.140, 5.16.130—5.16.150, 5.32.190 (5.12, 5.16, 5.32)
Amdt. 1	Amends §§ 2, 7, 9, 10 of Ord. BL2007-1557 (5.12)
BL2007-1558	Approves agreement with the Nashville Downtown Partnership (Special)
BL2007-1559	Approves amendments to agreement with the State of Tennessee, Department of Environment and Conservation (Special)
BL2007-1560	Approves agreement and addendum with the State of Tennessee, Department of Transportation, and the City of Belle Meade (Special)
BL2007-1561	Transfers telecommunications franchise of Xspedius Management Company to Time Warner Telecom (Special)
BL2007-1562	(Failed)
BL2007-1563	Authorizes acquisition of certain properties (Special)
BL2007-1564	Authorizes acquisition of certain property (Special)
BL2007-1565	(Withdrawn)
BL2007-1566	Amends official street and alley acceptance and maintenance map (Special)
BL2007-1567	(Withdrawn)
BL2007-1	Amends § 2.177.080.C., E.; repeals §§ 2.174.010—2.174.090 (2.174, 2.177)
Amdt. 1	Amends fourth recital clause of Ord. BL2007-1 (Special)
BL2007-2	Amends official street and alley acceptance and maintenance map (Special)
BL2007-3	Adopts Code § 1.01.010 (1.01)
BL2007-4	(Withdrawn)
BL2007-5	Authorizes Tennessee Independent Telecommunications Group, LLC d/b/a Iris Networks, to construct, install, and maintain fiber optic cable within Davidson County, Tennessee (Special)
BL2007-6	Amends official street and alley acceptance and maintenance map (Special)
BL2007-7	Amends official street and alley acceptance and maintenance map (Special)
BL2007-8	Amends official street and alley acceptance and maintenance map (Special)
BL2007-9	Amends official zoning map (Special)
BL2007-10	Amends official zoning map (Special)
BL2007-11	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2007-11 (Special)
BL2007-12	Amends official zoning map (Special)
BL2007-13	Amends official zoning map (Special)

Ordinance Number	Disposition
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2007-13 (Special)
BL2007-14	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2007-14 (Special)
BL2007-15	(Withdrawn)
BL2007-16	(Withdrawn)
BL2007-17	(Withdrawn)
BL2007-18	(Withdrawn)
BL2007-19	Amends official zoning map (Special)
BL2007-20	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly, deletes and replacec § 5 of Ord. BL2007-20 (Special)
Amdt. 2	Amends certain language in Ord. BL2007-20 (Special)
BL2007-21	Amends official zoning map (Special)
Amdt. 1	Amends caption, § 1 and substitutes sketch and list of parcels Ord. BL2007-21 (Special)
BL2007-22	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2007-22 (Special)
BL2007-23	(Withdrawn)
BL2007-24	Amends official zoning map (Special)
BL2007-25	Amends official zoning map (Special)
BL2007-26	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2007-26 (Special)
BL2007-27	Amends official zoning map (Special)
BL2007-28	Amends official zoning map (Special)
BL2007-29	Amends official zoning map (Special)
BL2007-30	Amends official zoning map (Special)
BL2007-31	Amends official zoning map (Special)
BL2007-32	Amends official zoning map (Special)
BL2007-33	(Disapproved)
BL2007-34	(Withdrawn)
BL2007-35	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2007-35 (Special)
BL2007-36	Amends §§ 17.12.070.F, 17.40.170.B. (17.12, 17.40)
BL2007-37	(Withdrawn)
BL2007-38	Repeals Ord. BL2007-1451, which added § 5.04.076 (5.04)
BL2007-39	(Withdrawn)
BL2007-40	Adds § 16.24.340.U. (16.24)
Amdt. 1	Amends § 1 of Ord. BL2007-40 (16.24)
BL2007-41	Approves lease agreement (Special)
BL2007-42	Accepts donation of property (Special)
BL2007-43	Amends official street and alley acceptance and maintenance map (Special)
BL2007-44	(Withdrawn)
BL2007-45	Amends § 17.40.410.C. (17.40)
BL2007-46	Authorizes submittal of annual update to consolidated plan for housing and community development programs (Special)
BL2007-47	Amends § 15.68.020.B. (15.68)
BL2007-48	Establishes program to provide assistance to low-income elderly residents for fiscal year 2007—2008 (Special)
BL2007-49	Approves disposition of a parcel of surplus property (Special)
BL2007-50	Authorizes participation with project no. 06-SL-67 and 06-SL-71 (Special)
BL2007-51	Authorizes participation with project no. 07-SL-143 (Special)
BL2007-52	Authorizes acquisition of certain easements (Special)
BL2007-53	Authorizes acquisition of certain easements (Special)
BL2007-54	Authorizes acquisition of certain easements (Special)
BL2007-55	Authorizes acquisition of certain easements (Special)
BL2007-56	Authorizes acquisition of property (Special)
BL2007-57	Authorizes acceptance of certain easements (Special)
BL2007-58	Authorizes acceptance of certain easements (Special)
BL2007-59	Authorizes acceptance of certain easements (Special)
BL2007-60	Abandons portion of certain sanitary sewer line and easement and accepts replacement (Special)
BL2007-61	Abandons public utility easement (Special)
BL2007-62	Amends official street and alley acceptance and maintenance map (Special)
BL2007-63	(Failed)
BL2007-64	(Withdrawn)
BL2007-65	(Withdrawn)
BL2007-66	Adds § 11.12.090 (11.12)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2007-66 (11.12)
BL2007-67	Authorizes participation with project no. 07-SL-113 (Special)
BL2007-68	Authorizes participation with project no. 05-SL-63 (Special)
BL2007-69	Authorizes the acquisition of easements (Special)
BL2007-70	Authorizes the acquisition of property (Special)
BL2007-71	(Withdrawn)

Ordinance Number	Disposition
BL2007-72	Approves disposition of a parcel of surplus property (Special)
BL2007-73	Abandons easement rights (Special)
BL2007-74	Authorizes acceptance of certain easements (Special)
BL2007-75	Authorizes acceptance of certain easements (Special)
BL2007-76	Amends official street and alley acceptance and maintenance map (Special)
BL2007-77	Adopts official street and alley acceptance and maintenance map (Special)
BL2007-78	(Failed)
BL2007-79	(Withdrawn)
BL2007-80	Authorizes participation with project no. 07-SL-187 (Special)
BL2007-81	Authorizes participation with project no. 06-SL-183 (Special)
BL2007-82	Accepts donation of equipment (Special)
BL2007-83	Authorizes acceptance of certain easements (Special)
BL2007-84	(Withdrawn)
BL2007-85	(Withdrawn)
BL2007-86	(Withdrawn)
BL2007-87	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2007-87 (Special)
BL2007-88	Amends official zoning map (Special)
BL2007-89	Amends official zoning map (Special)
BL2007-90	Amends official zoning map (Special)
BL2007-91	Amends official zoning map (Special)
BL2007-92	(Withdrawn)
BL2007-93	Amends official zoning map (Special)
BL2007-94	Amends official zoning map (Special)
BL2007-95	Amends official zoning map (Special)
BL2007-96	Amends official zoning map (Special)
BL2007-97	Amends official zoning map (Special)
BL2007-98	Amends official zoning map (Special)
BL2007-99	Amends official zoning map (Special)
BL2007-100	(Withdrawn)
BL2007-101	Amends § 3.08.010; adds § 3.12.050.B.; amends §§ 3.16.010.A., B., 3.16.020.A., C., D., 3.16.040.A., 3.24.010.A., C., 3.24.020.B., C. (3.08, 3.12, 3.16, 3.24)
BL2007-102	Amends official street and alley acceptance and maintenance map (Special)
BL2007-103	Amends official street and alley acceptance and maintenance map (Special)
BL2007-104	Amends official street and alley acceptance and maintenance map (Special)
BL2007-105	Authorizes Olive Branch Baptist church to install, construct and maintain a sign encroachment (Special)
BL2007-106	Authorizes participation with project no. 06-SL-70 (Special)
BL2007-107	Authorizes participation with project no. 07-SL-6 (Special)
BL2007-108	Authorizes acceptance of certain easements (Special)
BL2007-109	Amends PUD approved by Ord. No. O95-41 (Special)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2007-109 (Special)
Amdt. 2	Repeals Amdt. 1 and deletes and substitutes § 1 of Ord. BL2007-109 (Special)
BL2007-110	Amends official zoning map (Special)
BL2008-111	Repeals § 3.16.040.B.; adds § 3.24.010.C., and renumbers existing C. as D. (3.16, 3.24)
BL2008-112	Approves disposition of parcels of surplus property (Special)
BL2008-113	Accepts donation of funds (Special)
BL2008-114	(Withdrawn)
BL2008-115	Amends § 17.04.060.B. (17.04)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2008-115 (17.04)
Amdt. 2	Repeals amendment no. 1 and substitutes new § 1 of Ord. BL2008-115 (17.04)
BL2008-116	Amends §§ 6.06.030.B.6., E.2., 6.06.040, 6.06.070.B. (6.06)
BL2008-117	Adds § 6.80.455 (6.80)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2008-117 (6.80)
BL2008-118	(Withdrawn)
BL2008-119	Authorizes Dolphini Networks to install, construct, and maintain a telecommunications cable (Special)
BL2008-120	Approves lease agreement (Special)
BL2008-121	Approves contract (Special)
BL2008-122	Abandons portion of water line and easement and accepts replacement (Special)
BL2008-123	Abandons portion of sanitary sewer line and easement and accepts replacement (Special)
BL2008-124	Abandons easement rights (Special)
BL2008-125	Abandons portion of sanitary sewer line and easement and accepts replacement (Special)
Amdt. 1	Amends § 1 of Ord. BL2008-125 (Special)
BL2008-126	Abandons public utility easements (Special)
BL2008-127	Abandons public utility drainage easement and drainage pipe and accepts replacement (Special)
BL2008-128	Amends official street and alley acceptance and maintenance map (Special)
BL2008-129	Amends official street and alley acceptance and maintenance map (Special)

Ordinance Number	Disposition
Amdt. 1	Amends § 1 of Ord. BL2008-129 (Special)
BL2008-130	Abandons portion of sanitary sewer line and easement and accepts replacement (Special)
Amdt. 1	Amends Ord. BL2008-130 by replacing Exhibit 1 (Special)
BL2008-131	Abandons portion of sanitary sewer line and easement and accepts replacement (Special)
Amdt. 1	Amends § 1 and replaces Exhibit 1 of Ord. BL2008-131 (Special)
BL2008-132	Abandons portion of sanitary sewer line and easement and accepts replacement (Special)
Amdt. 1	Amends § 1 of Ord. BL2008-132 (Special)
BL2008-133	Amends official zoning map (Special)
BL2008-134	Amends official zoning map (Special)
BL2008-135	Amends official zoning map (Special)
Amdt. 1	Amends zoning classification in caption, deletes and substitutes § 1 of Ord. BL2008-135 (Special)
BL2008-136	Amends official zoning map (Special)
BL2008-137	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly, deletes and replaces § 6 of Ord. BL2008-137 (Special)
BL2008-138	Amends official zoning map (Special)
BL2008-139	Amends official zoning map (Special)
BL2008-140	(Withdrawn)
BL2008-141	(Withdrawn)
BL2008-142	(Failed)
BL2008-143	(Withdrawn)
BL2008-144	Amends official zoning map (Special)
BL2008-145	Amends official zoning map (Special)
BL2008-146	(Withdrawn)
BL2008-147	Amends official zoning map (Special)
BL2008-148	Amends official zoning map (Special)
BL2008-149	Amends official zoning map (Special)
BL2008-150	Amends Table 17.08.030, § 17.16.070.P. (17.08, 17.16)
Amdt. 1	Amends § 2 of Ord. BL2008-150 (17.16)
BL2008-151	Amends § 17.04.060.B. (17.04)
BL2008-152	(Withdrawn)
BL2008-153	Amends § 17.24.100.B. (17.24)
Amdt. 1	Amends § 1 of Ord. BL2008-153 (17.24)
Amdt. 2	Deletes and substitutes § 1 of Ord. BL2008-153 (17.24)
BL2008-154	Approves the Skyline Redevelopment Plan (Special)
BL2008-155	Adopts Code § 1.01.010 (1.01)
BL2008-156	Abandons portion of water line and easement and acceptance of replacement (Special)
BL2008-157	Abandons portion of sanitary sewer line and easement and acceptance of replacement (Special)
BL2008-158	(Withdrawn)
BL2008-159	Amends official zoning map (Special)
Amdt. 1	Adds new § 4 and renumbers existing sections accordingly of Ord. BL2008-159 (Special)
Amdt. 2	Amends § 3 of Ord. BL2008-159 (Special)
BL2008-160	Amends official zoning map (Special)
BL2008-161	Adds §§ 4.46.001—4.46.150 (4.46)
Amdt. 1	Amends § 1, delets and substitutes § 2 and adds § 3 of Ord. BL2008-161 (4.46)
BL2008-162	Authorizes participation agreement with John Ring, Tennessee Contractors, Inc., to provide public sewer services (Special)
BL2008-163	Authorizes participation agreement with B & Y Properties, to provide public sewer services (Special)
BL2008-164	Authorizes participation agreement with Sunset Properties, to provide public sewer services (Special)
BL2008-165	Authorizes acceptance of certain easements (Special)
BL2008-166	Amends official zoning map (Special)
BL2008-167	Amends §§ 17.04.060.B., Table 17.08.030, 17.16.070 (17.04, 17.08, 17.16)
BL2008-168	(Withdrawn)
BL2008-169	Amends §§ 17.04.060, 17.08.030, 17.16.050.A.; adds § 17.16.070.M. and renumbers existing sections accordingly (17.04, 17.08, 17.16)
Amdt. 1	Deletes and substitutes § 2 of Ord. BL2008-168 (17.08)
BL2008-170	Amends § 15.68.020.B. (15.68)
BL2008-171	Accepts donation of a horse (Special)
BL2008-172	Authorizes the department of water and sewerage services to use the metropolitan government's contract with UtiliQuest (Special)
BL2008-173	Amends official zoning map (Special)
BL2008-174	Fiscal year 2009 budget (Special)
BL2008-175	Establishes tax levy in the General Services District for the fiscal year 2008—2009 (Special)
BL2008-176	Amends § 2.56.135 (2.56)
BL2008-177	Approves acquisition of right-of-way easement (Special)
BL2008-178	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2008-178 by substituting new sketch (Special)
BL2008-179	Amends official zoning map (Special)
BL2008-180	Amends official zoning map (Special)
BL2008-181	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2008-182	(Withdrawn)
BL2008-183	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2008-183 (Special)
BL2008-184	Amends official zoning map (Special)
BL2008-185	Amends official zoning map (Special)
Amdt. 1	Adds new § 2 and renumbers existing sections accordingly of Ord. BL2008-185 (Special)
BL2008-186	Amends official zoning map (Special)
BL2008-187	(Withdrawn)
BL2008-188	Amends Ord. BL2006-1296 (Special)
Amdt. 1	Deletes and substitutes § 2 of Ord. BL2008-188 (Special)
BL2008-189	Amends official zoning map (Special)
BL2008-190	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2008-190 (Special)
BL2008-191	Amends official zoning map (Special)
BL2008-192	Amends official zoning map (Special)
BL2008-193	Amends official zoning map (Special)
BL2008-194	Amends official zoning map (Special)
BL2008-195	Amends official zoning map (Special)
BL2008-196	Amends official zoning map (Special)
BL2008-197	Amends official zoning map (Special)
BL2008-198	Amends official zoning map (Special)
BL2008-199	(Withdrawn)
BL2008-200	(Withdrawn)
BL2008-201	Amends § 17.32.050.G., H. (17.32)
BL2008-202	Amends Table 17.08.030 (17.08)
BL2008-203	(Failed)
BL2008-204	Amends official zoning map (Special)
BL2008-205	(Withdrawn)
BL2008-206	Amends § 3.08.010 (3.08)
BL2008-207	Authorizes maintenance agreement with Towering Oaks Developing Group, LLC (Special)
BL2008-208	Authorizes maintenance agreement with Ole South Properties, Inc. (Special)
BL2008-209	Authorizes maintenance agreement with Beazer Homes (Special)
BL2008-210	Abandons portion of sanitary sewer line and easement (Special)
BL2008-211	Authorizes the acquisition of property (Special)
BL2008-212	Authorizes acceptance of certain easements (Special)
BL2008-213	Amends § 2.176.080.A., B. (2.176)
BL2008-214	Adds § 5.16.075 (5.16)
BL2008-215	Amends §§ 15.20.045.A, C., 15.20.050.A., B., 15.20.060, 15.36.040.A, F., 15.36.070, 15.36.080 (15.20, 15.36)
BL2008-216	Amends § 16.24.330 K.3.
BL2008-217	Adds § 16.36.050 (16.36)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2008-217 (16.36)
Amdt. 2	Amends § 1 of Ord. BL2008-217 (16.36)
BL2008-218	Repeals Ord. BL2001-777 (Special)
Amdt. 1	Deletes and substitutes fourth recital clause and § 1 of Ord. BL2008-218 (Special)
BL2008-219	Approves anonymous donation of $10,000.00 for the use and benefit of the Davidson County Drug Court program (Special)
BL2008-220	Amends official street and alley acceptance and maintenance map (Special)
BL2008-221	Amends official street and alley acceptance and maintenance map (Special)
BL2008-222	Amends official street and alley acceptance and maintenance map (Special)
BL2008-223	(Withdrawn)
BL2008-224	(Withdrawn)
BL2008-225	Approves affiliation agreement with Vanderbilt University (Special)
BL2008-226	Approves lease agreement (Special)
BL2008-227	Approves disposition of a parcel of property (Special)
BL2008-228	Abandons portion of certain brick-combination sewer line and easement (Special)
BL2008-229	Capital improvements budget and program 2008—2009 through 2013—2014 (Special)
BL2008-230	(Withdrawn)
BL2008-231	Authorizes maintenance agreement with E. Phillips Development, L.L.C. (Special)
BL2008-232	Amends official zoning map (Special)
BL2008-233	Amends official zoning map (Special)
BL2008-234	Amends official zoning map (Special)
BL2008-235	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2008-235 (Special)
BL2008-236	(Withdrawn)
BL2008-237	Amends official zoning map (Special)
BL2008-238	(Withdrawn)
BL2008-239	Amends official zoning map (Special)
BL2008-240	Amends official zoning map (Special)
BL2008-241	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2008-241 (Special)
BL2008-242	Amends official zoning map (Special)
BL2008-243	Amends Table 17.08.030 (17.08)
BL2008-244	(Withdrawn)
BL2008-245	Adds § 17.40.075 (17.40)
Amdt. 1	Amends § 1 of Ord. BL2008-245 (17.40)
BL2008-246	Amends § 11.28.080.A. (11.28)

Ordinance Number	Disposition
BL2008-247	Authorizes acceptance of the donation of a conservation easement (Special)
BL2008-248	Requires all departments submit annual report regarding actions taken to reduce paper consumption and postage expenses (Special)
BL2008-249	(Withdrawn)
BL2008-250	Authorizes renewal of water easement (Special)
BL2008-251	Amends §§ 5.12.120, 5.12.130, 5.12.140 (5.12)
BL2008-252	Adopts property identification maps (Special)
BL2008-253	Authorizes renewal of sewer and water easements (Special)
BL2008-254	Abandons certain public utility easement (Special)
BL2008-255	Amends official street and alley acceptance and maintenance map (Special)
BL2008-256	Amends official street and alley acceptance and maintenance map (Special)
BL2008-257	Authorizes Nashville Pinnacle, LLC, to install, construct and maintain an encroachment (Special)
BL2008-258	(Withdrawn)
BL2008-259	Amends § 11.12.070.A., E. (11.12)
Amdt. 1	Renumbers § 2 as § 3 and adds new § 3 of Ord. BL2008-259 (11.12)
BL2008-260	Amends official street and alley acceptance and maintenance map (Special)
BL2008-261	Amends official street and alley acceptance and maintenance map (Special)
BL2008-262	Amends official street and alley acceptance and maintenance map (Special)
BL2008-263	Authorizes acquisition of certain properties (Special)
BL2008-264	Authorizes acquisition and acceptance of certain easements (Special)
BL2008-265	Authorizes acquisition and acceptance of certain easements (Special)
BL2008-266	Authorizes acceptance of certain easements (Special)
BL2008-267	Abandons public utility drainage easement (Special)
Amdt. 1	Amends caption and first recital clause of Ord. BL2008-267 (Special)
BL2008-268	Authorizes participation with project no. 07-SL-223 (Special)
BL2008-269	Authorizes participation with project no. 08-SL-40 (Special)
BL2008-270	Authorizes participation with project no. 06-SL-141 (Special)
BL2008-271	Amends official zoning map (Special)
BL2008-272	Amends official zoning map (Special)
BL2008-273	Amends official zoning map (Special)
BL2008-274	Amends official zoning map (Special)
BL2008-275	Amends official zoning map (Special)
BL2008-276	Amends official zoning map (Special)
BL2008-277	Amends official zoning map (Special)
BL2008-278	Amends official zoning map (Special)
BL2008-279	Amends official zoning map (Special)
BL2008-280	(Withdrawn)
BL2008-281	(Defeated)
BL2008-282	Amends § 17.04.060.B., Table 17.08.030 (17.04, 17.08)
Amdt. 1	Amends § 1 of Ord. BL2008-282 (17.04)
BL2008-283	(Withdrawn)
BL2008-284	Amends § 6.80.550 (6.80)
BL2008-285	Amends § 17.40.770 (17.40)
Amdt. 1	Amends § 1 of Ord. BL2008-285 (17.40)
BL2008-286	Creates positions for the Division of Metropolitan Audit (Special)
BL2008-287	(Withdrawn)
BL2008-288	Authorizes participation with project no. 03-SL-89 (Special)
BL2008-289	Abandons portion of certain sanitary sewer and water lines and easements and accepts replacements (Special)
BL2008-290	Abandons a public utility drainage easement (Special)
BL2008-291	Amends official street and alley acceptance and maintenance map (Special)
BL2008-292	Amends §§ 6.52.010, 6.52.030 (6.52)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2008-292 (6.52)
BL2008-293	(Withdrawn)
BL2008-294	Authorizes participation with project no. 03-SL-89 (Special)
BL2008-295	Amends official street and alley acceptance and maintenance map (Special)
BL2008-296	Amends official street and alley acceptance and maintenance map (Special)
BL2008-297	(Withdrawn)
BL2008-298	Amends § 3.40.050 (3.40)
BL2008-299	Amends §§ 17.04.060, 17.08.030, 17.16.070 (17.04, 17.08, 17.16)
BL2008-300	Approves contract for medical services (Special)
BL2008-301	Abandons a public utility easement (Special)
BL2008-302	Abandons a water line and easement and an adjustment of a sanitary sewer manhole (Special)
BL2008-303	Abandons portion of sanitary sewer line and easement (Special)
BL2008-304	Grants easement to Lion Oil Company (Special)
BL2008-305	Authorizes the acquisition of easements (Special)

Ordinance Number	Disposition
BL2008-306	Amends § 11.12.070 (11.12)
BL2008-307	Amends §§ 12.40.040.E., 12.60.135.B. (12.40, 12.60)
BL2008-308	Establishes program to provide assistance to low-income elderly residents for fiscal year 2008—2009 (Special)
BL2008-309	Authorizes license agreement with MPD Community Credit Union relating to use of office space (Special)
BL2008-310	Approves lease agreement (Special)
BL2008-311	Approves amendments to agreement with the State of Tennessee, Department of Environment and Conservation (Special)
BL2008-312	Amends official street and alley acceptance and maintenance map (Special)
BL2008-313	(Withdrawn)
BL2008-314	Amends official zoning map (Special)
BL2008-315	Amends official zoning map (Special)
BL2008-316	Amends official zoning map (Special)
BL2008-317	Amends official zoning map (Special)
BL2008-318	Amends official zoning map (Special)
Amdt. 1	Amends caption, § 1 and sketch of Ord. BL2008-318 (Special)
BL2008-319	Amends official zoning map (Special)
BL2008-320	Amends official zoning map (Special)
BL2008-321	Amends official zoning map (Special)
BL2008-322	Amends official zoning map (Special)
BL2008-323	(Withdrawn)
BL2008-324	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3, 4, 5 to Ord. BL2008-324 (Special)
BL2008-325	(Withdrawn)
BL2008-326	(Withdrawn)
BL2008-327	Amends Tables 17.20.030, 17.20.040 (17.20)
BL2008-328	Amends §§ 17.24.020, 17.24.050, 17.24.080, 17.24.090, 17.24.100; adds § 17.24.110.G. (17.24)
BL2008-329	Amends official zoning map (Special)
BL2008-330	Amends § 2.128.050.A., B. (2.128)
BL2008-331	Amends §§ 10.18.010, 10.18.020 (10.18)
BL2008-332	Amends § 10.64.015 (10.64)
BL2008-333	Adds §§ 17.40.010.H., I., 17.40.180.F. (17.40)
BL2008-334	(Withdrawn)
BL2008-335	Abandons sanitary sewer line and easement and water lines and easement (Special)
BL2008-336	Abandons and replaces sanitary sewer line and easement (Special)
BL2008-337	Abandons sanitary sewer line and easement and installs a manhole (Special)
BL2008-338	Authorizes mayor to submit annual update to the consolidated plan for housing and community development programs (Special)
Amdt. 1	Amends § 8 and inserts new § 9 of Ord. BL2008-338 (Special)
BL2008-339	Authorizes the acquisition of easements (Special)
BL2008-340	Approves and accepts contribution from Murphy Development, LLC for infrastructure improvements (Special)
BL2008-341	Approves and accepts contribution from Centex Homes for infrastructure improvements (Special)
BL2008-342	Amends official street and alley acceptance and maintenance map (Special)
BL2008-343	Amends official street and alley acceptance and maintenance map (Special)
BL2008-344	Amends §§ 6.06.010, 6.06.070.B.; repeals § 6.06.060 (6.06)
Amdt. 1	Adds new recital clauses and amends § 1 of Ord. BL2008-344 (6.06)
BL2008-345	Amends § 15.64.010; adds § 15.64.195 (15.64)
BL2008-346	Amends official street and alley acceptance and maintenance map (Special)
BL2008-347	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2008-348	Amends official street and alley acceptance and maintenance map (Special)
BL2008-349	Adds §§ 7.08.040.B.5., C.10., 7.08.140.B.; renumbers 7.08.140.B.—S. as C.—T.; amends § 7.08.180 (7.08)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2008-349 (7.08)
BL2008-350	Amends §§ 10.64.010, 10.64.012, 10.64.015, 10.64.017; adds § 10.64.016 (10.64)
Amdt. 1	Adds new § 7 and renumbers existing sections accordingly of Ord. BL2008-350 (10.64.010)
BL2008-351	(Failed)
BL2008-352	(Withdrawn)
BL2008-353	Approves contract (Special)
BL2008-354	Amends official zoning map (Special)
BL2008-355	Amends official zoning map (Special)
BL2008-356	Amends official zoning map (Special)
BL2008-357	Amends official zoning map (Special)
BL2008-358	Amends official zoning map (Special)
BL2008-359	(Withdrawn)
BL2008-360	Amends official zoning map (Special)
BL2008-361	(Withdrawn)
BL2008-362	Amends official zoning map (Special)
BL2008-363	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2008-363 (Special)
BL2008-364	Amends official zoning map (Special)

Ordinance Number	Disposition
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2008-364 (Special)
BL2008-365	Amends § 17.04.060 (17.04)
BL2008-366	Authorizes participation with project no. 04-SL-0195 (Special)
BL2008-367	Authorizes participation with project no. 19959-2546-94 (Special)
BL2009-368	Amends § 2.44.210 (2.44)
BL2009-369	(Withdrawn)
BL2009-370	Adopts Code § 1.01.010 (1.01)
BL2009-371	Approves master agreement (Special)
Amdt. 1	Renumbers § 2 as § 3 and adds new § 2 of Ord. BL2009-371
BL2009-372	Accepts donation of real property (Special)
BL2009-373	Amends official street and alley acceptance and maintenance map (Special)
BL2009-374	(Withdrawn)
BL2009-375	Amends official street and alley acceptance and maintenance map (Special)
BL2009-376	Abandons sewer line and easement (Special)
BL2009-377	Abandons sewer line, easement and manhole and accepts replacements (Special)
BL2009-378	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2009-379	Authorizes the acquisition of property (Special)
BL2009-380	Authorizes maintenance agreement with Beazer Homes, Bradburn Villages Subdivision (Special)
BL2009-381	Amends official zoning map (Special)
BL2009-382	Amends § 8.04.130 (8.04)
BL2009-383	Approves contract (Special)
BL2009-384	(Withdrawn)
BL2009-385	(Withdrawn)
BL2009-386	Amends official zoning map (Special)
BL2009-387	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2009-387 (Special)
BL2009-388	Amends official zoning map (Special)
BL2009-389	Amends official zoning map (Special)
Amdt. 1	Amends § 4 and adds new condition to § 6 of Ord. BL2009-389 (Special)
BL2009-390	(Withdrawn)
BL2009-391	Amends official zoning map (Special)
BL2009-392	Amends official zoning map (Special)
BL2009-393	Amends official zoning map (Special)
BL2009-394	Amends official zoning map (Special)
BL2009-395	Amends official zoning map (Special)
BL2009-396	Amends official zoning map (Special)
BL2009-397	Amends official zoning map (Special)
BL2009-398	(Withdrawn)
BL2009-399	Amends official zoning map (Special)
BL2009-400	Amends official zoning map (Special)
BL2009-401	Amends official zoning map (Special)
BL2009-402	Amends official zoning map (Special)
BL2009-403	Amends official zoning map (Special)
BL2009-404	(Withdrawn)
BL2009-405	Adds §§ 3.05.010—3.05.070 (3.05)
BL2009-406	(Withdrawn)
BL2009-407	Amends §§ 15.20.045.A., 15.20.050.A., 15.32.020, Table 15.32.020, 15.32.190, 15.36.040.A., 15.36.070, 15.44.020, Table 15.44.020, 15.64.032; adds Table 15.64.032; amends §§ 15.64.010, 15.64.015; repeals §§ 15.64.020.B., 15.64.031, 15.64.033 (15.20, 15.32, 15.36, 15.44, 15.64)
BL2009-408	Authorizes license agreement (Special)
Amdt. 1	Amends caption of Ord. BL2009-408 by deleting the word "Opryland" and substituting "Gaylord" (Special)
BL2009-409	Abandons water line and easement and accepts replacement (Special)
BL2009-410	(Withdrawn)
BL2009-411	(Withdrawn)
BL2009-412	Adds § 6.04.100 (6.04)
BL2009-413	Approving memorandum to creat a Joint Information Center on the Belmont University campus (Special)
BL2009-414	Approves disposition of a parcel of surplus property (Special)
BL2009-415	(Withdrawn)
BL2009-416	Amends § 17.04.060 (17.04)
BL2009-417	Amends § 6.72.220.B. (6.72)
BL2009-418	Adds § 8.12.030.C.4. (8.12)
BL2009-419	Amends § 12.08.150 (12.08)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2009-419 (12.08)
BL2009-420	Authorizes mayor to submit annual update to the consolidated plan for housing and community development programs (Special)
BL2009-421	Approves six leases with Metropolitan Development and Housing Agency (Special)
BL2009-422	Amends official zoning map (Special)
BL2009-423	Amends official zoning map (Special)
BL2009-424	Amends official zoning map (Special)
BL2009-425	Amends official zoning map (Special)
BL2009-426	Amends official zoning map (Special)
BL2009-427	Amends official zoning map (Special)
BL2009-428	Amends official zoning map (Special)
Amdt. 1	Adds new § 6 and renumbers existing sections accordingly of Ord. BL2009-428 (Special)
BL2009-429	(Withdrawn)
BL2009-430	Amends official zoning map (Special)
BL2009-431	Amends official zoning map (Special)
BL2009-432	(Withdrawn)

Ordinance Number	Disposition
BL2009-433	Amends § 6.04.020; adds § 6.04.035 (6.04)
Amdt. 1	Amends § 2 of Ord. BL2009-433 (6.04)
BL2009-434	Adds § 6.80.450.J. (6.80)
BL2009-435	Amends §§ 16.20.140, 16.20.150 (16.20)
BL2009-436	Approves Amdt. No. 3 to the Arts Center Redevelopment Plan and Amdt. No. 8 to Capitol Mall Redevelopment Project Plan (Special)
BL2009-437	Authorizes acquisition of property (Special)
Amdt. 1	(Failed)
Amdt. 2	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2009-437 (Special)
BL2009-438	Abandons sewer line, easement and manhole and accepts replacements (Special)
BL2009-439	Authorizes acquisition of property (Special)
BL2009-440	Authorizes acquisition of property (Special)
BL2009-441	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2009-442	(Withdrawn)
BL2009-443	Amends § 2.100.030 (2.100)
BL2009-444	Authorizes entrance into utility relocation contract no. 6849 (Special)
BL2009-445	Authorizes acquisition of property (Special)
BL2009-446	Authorizes acquisition of property (Special)
BL2009-447	Authorizes acquisition of property (Special)
BL2009-448	Authorizes acquisition of property (Special)
BL2009-449	Authorizes acquisition of property (Special)
BL2009-450	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2009-451	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2009-452	Abandons public drainage easements (Special)
BL2009-453	Abandons portion of certain sanitary sewer line and easement and accepts replacement (Special)
BL2009-454	Abandons public storm drainage easement (Special)
BL2009-455	Abandons portion of certain sanitary sewer line and easement and accepts replacement (Special)
BL2009-456	Fiscal year 2010 budget (Special)
BL2009-457	Establishes tax levy in the General Services District for the fiscal year 2009—2010 (Special)
BL2009-458	Amends § 1.16.020 (1.16)
BL2009-459	Amends §§ 7.08.010, 7.08.110 and 7.08.150 (7.08)
Amdt. 1	Amends § 6 of Ord. BL2009-459 (7.08)
BL2009-460	Adds § 8.12.090 (8.12)
BL2009-461	Amends § 15.64.195.D. (15.64)
BL2009-462	Amends § 17.16.080.C. (17.16)
Amdt. 1	Amends § 1 of Ord. BL2009-462 (17.16)
BL2009-463	(Withdrawn)
BL2009-464	Amends § 17.32.050.G.2. (17.32)
BL2009-465	(Withdrawn)
BL2009-466	Capital improvements budget and program 2009—2010 through 2014—2015 (Special)
BL2009-467	(Withdrawn)
BL2009-468	Amends street and alley acceptance and maintenance map (Special)
BL2009-469	Amends street and alley acceptance and maintenance map (Special)
BL2009-470	Amends official zoning map (Special)
Amdt. 1	Amends § 1 to Ord. BL2009-470 (Special)
BL2009-471	(Withdrawn)
BL2009-472	Amends official zoning map (Special)
BL2009-473	Amends official zoning map (Special)
Amdt. 1	Deletes and substitutes § 4 of Ord. BL2009-473 (Special)
BL2009-474	Amends official zoning map (Special)
BL2009-475	Amends official zoning map (Special)
BL2009-476	Amends official zoning map (Special)
BL2009-477	Amends § 17.04.060, Table 17.08.030; adds § 17.16.100.C. (17.04, 17.08, 17.16)
Amdt. 1	Amends § 3 of Ord. BL2009-477 (17.16)
BL2009-478	Amends § 17.04.060 (17.04)
BL2009-479	Amends §§ 17.04.060, Table 17.08.030, 17.16.230.A. (17.04, 17.08, 17.16)
BL2009-480	(Withdrawn)
BL2009-481	Adopts Code § 1.01.010 (1.01)
BL2009-482	Amends § 4.20.030.A. (4.20)
BL2009-483	(Withdrawn)
BL2009-484	Approves lease agreement (Special)
BL2009-485	Abandons water main, three fire hydrants, sewer line, two manholes and easements (Special)
BL2009-486	Abandons a public utility easement (Special)
BL2009-487	Approves disposition of parcels of surplus property (Special)
BL2009-488	Intergovernmental agreement with hospital authority (Special)
BL2009-489	Amends § 13.24.440 (13.24)
BL2009-490	Approving an agreement with the Board of Trustees of the Blakemore Primitive Baptist Church (Special)
BL2009-491	Amends § 12.40.180 (12.40)
Amdt. 1	Amends § 12.40.180 A. (12.40)
BL2009-492	Adopts property identification maps (Special)
BL2009-493	Approves agreement with Summerfield Village, LLP (Special)
BL2009-494	Authorizes acquisition of certain property (Special)
BL2009-495	Abandons public utility easement (Special)
BL2009-496	Abandons public utility easement (Special)
BL2009-497	Abandons easement rights (Special)

Ordinance Number	Disposition
BL2009-498	(Withdrawn)
BL2009-499	(Withdrawn)
BL2009-500	Names observation towers (Special)
BL2009-501	Repeals §§ 2.160.010—2.160.030; adds §§ 2.160.010—2.160.060 (2.160)
BL2009-502	Adds § 11.20.130 (11.20)
Amdt. 1	Amends § 11.20.130 (11.20)
BL2009-503	(Withdrawn)
BL2009-504	Approves agreement with the Land Trust for Tennessee, Incorporated (Special)
BL2009-505	Authorizes entrance into utility relocation contract no. 7313 (Special)
BL2009-506	Authorizes acceptance of certain easements for stormwater projects (Special)
BL2009-507	Authorizes 315 Union Street Holdings, LLC to install, construct and maintain an aerial and underground encroachment (Special)
BL2009-508	Authorizes Charlotte Road Baptist Church to install, construct and maintain a sign encroachment (Special)
BL2009-509	Amends § 10.64.015.AA.; adds 10.64.015.DD. (10.64)
BL2009-510	(Failed)
BL2009-511	Amends official zoning map (Special)
BL2009-512	Amends official zoning map (Special)
BL2009-513	Amends official zoning map (Special)
BL2009-514	Amends official zoning map (Special)
Amdt. 1	Amends § 3 to Ord. BL2009-514 (Special)
BL2009-515	Amends official zoning map (Special)
BL2009-516	Amends official zoning map (Special)
BL2009-517	Amends official zoning map (Special)
BL2009-518	Amends official zoning map (Special)
BL2009-519	Amends official zoning map (Special)
BL2009-520	(Withdrawn)
BL2009-521	Amends official zoning map (Special)
Amdt. 1	Amends §§ 1, 4, 7, 8 to Ord. BL2009-521 (Special)
BL2009-522	Amends official zoning map (Special)
BL2009-523	Amends official zoning map (Special)
BL2009-524	(Withdrawn)
BL2009-525	Repeals § 6.80.450.J.; adds §§ 6.81.005—6.81.200 (6.80, 6.81)
Amdt. 1	Amends § 6.81.180.C. (6.81)
BL2009-526	(Withdrawn)
BL2009-527	(Withdrawn)
BL2009-528	Abandons portion of Old Baker Road right-of-way (Special)
BL2009-529	Amends and extends recycling services agreement (Special)
BL2009-530	Accepts and records easements (Special)
Amdt. 1	Amends §§ 1, 2 to Ord. BL2009-530 (Special)
BL2009-531	Enter lease for the use and benefit of the Greenway Commission (Special)
Amdt. 1	Amends Exhibit A and B to Ord. BL2009-531 (Special)
BL2009-532	Accepts donations of real porperty for use as part of parks system (Special)
BL2009-533	Accepts easements for use and benfit of the Greenway Commission (Special)
BL2009-534	Abandons portion of unnamed road from Holt Road southward to dead end (Special)
BL2009-535	Amends § 17.04.060.B. (17.04)
Amdt. 1	Amends § 17.04.060.B. (17.04)
BL2009-536	(Withdrawn)
BL2009-537	Amends § 17.04.060.B.; amends § 17.08.030 (17.04, 17.08)
Amdt. 1	Amends § 17.04.060.B. (17.04)
BL2009-538	Amends § 6.54.010, § 17.04.060 (6.54, 17.04)
Amdt. 1	Amends § 6.54.010, § 17.07.060 (6.54, 17.04)
BL2009-539	Amends § 5.16.075.E., F. (5.16)
BL2009-540	Amends § 1.01.010 (1.01)
BL2009-541	Approves agreement with Vanderbilt University to provide student clinical instruction and training with Davidson County Community Corrections (Special)
BL2009-542	Authorizes acquisition of property for purpose of acquiring an easement (Special)
BL2009-543	Abandons and excepts replacement 8-inch water line and easement (Special)
BL2009-544	Authorizes agreement to provide public sewer service to Wahl Property (Special)
BL2009-545	Adds §§ 5.14.010—5.14.050 (5.14)
BL2009-546	Adds §§ 10.30.010—10.30.080 (10.30)
BL2009-547	(Withdrawn)
BL2009-548	Establishes program providing assistance to low-income elderly residents for fiscal year 2009-2010 (Special)
BL2009-549	Approves contract for the maintenance of closed, Thermal Ash Monofill solid waste facility (Special)
BL2009-550	Approves easement rights for property (Special)
BL2009-551	Authorizes quitclaim deed for property with improvements consisting of old steel truss bridge on Lebanon Road crossing Stones River (Special)
BL2009-552	Amends § 17.16.030.E. (17.16)
BL2009-553	Amends official zoning map (Special)
BL2009-554	Amends official zoning map (Special)
Amdt. 1	Amends § 4 to Ord. BL2009-554 (Special)
BL2009-555	Amends official zoning map (Special)
Amdt. 1	Amends § 4 to Ord. BL2009-555 (Special)
BL2009-556	Amends official zoning map (Special)
BL2009-557	Amends official zoning map (Special)
BL2009-558	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2009-559	Amends official zoning map (Special)
BL2009-560	Amends official zoning map (Special)
BL2009-561	Amends official zoning map (Special)
BL2009-562	(Withdrawn)
BL2009-563	Amends official zoning map (Special)
BL2009-564	Amends official zoning map (Special)
Amdt. 1	Amends § 3 to Ord. BL2009-564 (Special)
BL2009-565	Amends official zoning map (Special)
Amdt. 1	Amends § 3 to Ord. BL2009-565 (Special)
BL2009-566	Amends official zoning map (Special)
Amdt. 1	Amends § 3 to Ord. BL2009-566 (Special)
BL2009-567	Amends official zoning map (Special)
BL2009-568	(Withdrawn)
BL2009-569	(Withdrawn)
BL2009-570	(Withdrawn)
BL2009-571	Approves contract for services for Emergency Communications (Special)
BL2009-572	Abandons and accepts 10-inch water line and easement (Special)
BL2009-573	(Withdrawn)
BL2009-574	Grants a franchise to DukeNet Communications LLC to construct, operate and maintain telecommunications system (Special)
BL2009-575	(Withdrawn)
BL2009-576	Authorizes acquisition of property (Special)
BL2009-577	Approves lease for space to be used for Academy at Opry Mills Education Resource Center (Special)
BL2009-578	(Withdrawn)
BL2009-579	Adopts plan of services for extension of boundaries of Urban Services District to include Whites Creek Pike (Special)
Amdt. 1	Amends § 1 as Exhibit A to Ord. BL2009-579 (Special)
BL2009-580	Extends the boundaries of the Urban Services District (Special)
BL2009-581	Adopts a proposed plan of services for the extension of the boundaries of the Urban Services District (Special)
BL2009-582	Extends the boundaries of the Urban Services District (Special)
BL2009-583	Grants a franchise to CentryTel Fiber Company II, LLC to construct, operate and maintain telecommunications system (Special)
BL2009-584	Authorizes acquisition of property (Special)
BL2009-585	(Withdrawn)
BL2009-586	Amends §§ 17.04.020.D., 17.04.060, 17.08.010—17.08.030, 17.12.020—17.12.040, 17.12.070, 17.12.100, 17.12.110, 17.16.010.C., 17.16.020, 17.16.030.E.12., 17.16.070.S., 17.16.080.B.3., C.7., 17.16.180.A.5., B.2., 17.20.020.C., 17.20.040.A., 17.24.010, 17.24.160.A.1.; repeals § 17.24.190.C.; amends §§ 17.28.030.B.1., 17.28.040.E., 17.32.140, 17.36.440, 17.37.010, 17.40.170.B., C., 17.40.340, 17.40.530.A. (17.04, 17.08, 17.12, 17.16, 17.20, 17.24, 17.28, 17.32, 17.36, 17.37, 17.40)
Amdt. 1	Amends § 17.16.020 (17.16)
Amdt. 2	Amends Exhibit C of Ord. BL2009-586
Amdt. 3	Amends § 17.24.170 (17.24)
BL2009-587	Amends §§ 7.08.010, 7.08.090, 11.12.070, 13.08.040, 13.08.060 (7.08, 11.12, 13.08)
BL2009-588	Amends official zoning map (Special)
BL2009-589	Amends official zoning map (Special)
Amdt. 1	Amends § 4 to Ord. BL2009-589 (Special)
BL2009-590	Amends official zoning map (Special)
Amdt. 1	Amends § 3 to Ord. BL2009-590 (Special)
BL2009-591	Amends official zoning map (Special)
BL2009-592	Amends official zoning map (Special)
BL2009-593	Amends official zoning map (Special)
BL2009-594	Amends official zoning map (Special)
BL2009-595	(Withdrawn)
BL2009-596	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3, 4 to Ord. BL2009-596 (Special)
BL2009-597	(Withdrawn)
BL2009-598	Amends official zoning map (Special)
BL2009-599	Authorizes Metropolitan Mayor to submit five-year Consolidated Plan for Housing and Community Development Programs to the U.S. Department of Housing and Urban Development (Special)
BL2009-600	(Withdrawn)
BL2009-601	Amends § 12.40.070.A. (12.40)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2009-601 (12.40)
BL2009-602	(Withdrawn)
BL2009-603	Adopts official street and alley acceptance and maintenance map (Special)
BL2009-604	Accepts donation of three tacts of real property located West of Old Hickory Boulevard in vicinity of Murfreesboro Road and Hobson Pike (Special)
BL2009-605	Abandons 15-foot public utility easement (Special)
Amdt. 1	Amends Exhibit D to Ord. BL2009-604 (Special)
BL2009-606	Adds § 8.12.100 (8.12)

Ordinance Number	Disposition
BL2009-607	Grants a franchise to Access Fiber Group, Inc. to construct, operate and maintain telecommunications system (Special)
BL2009-608	Authorizes to enter utility relocation contract (Special)
Amdt. 1	Amends Exhibit A to Ord. BL2009-608 (Special)
BL2009-609	(Withdrawn)
BL2009-610	Abandons and accepts 8-inch sanitary sewer line (Special)
BL2010-611	(Withdrawn)
BL2010-612	Amends § 12.40.200 (12.40)
Amdt. 1	Amends § 12.40.200 (12.40)
BL2010-613	Amends § 16.08.014.M.; adds § 16.28.175; repeals § 16.28.240.D. (16.08, 16.28)
BL2010-614	Repeals §§ 6.08.080.E., 6.10.010—6.10.040; adds § 6.08.080.G. (6.08, 6.10)
BL2010-615	(Withdrawn)
BL2010-616	Amends §§ 1.01.010—1.01.050 (1.01)
BL2010-617	Amends § 7.16.110.A.; adds § 7.16.110.G. (7.16)
BL2010-618	Abandons portion of Alley No. 1609 (Special)
BL2010-619	Changes name of McLemore Street to "YMCA Way" (Special)
BL2009-620	(Withdrawn)
BL2010-621	Amends §§ 6.80.020, 6.80.170.A. (6.80)
BL2010-622	Amends § 16.08.012.U. (16.08)
Amdt. 1	Amends § 16.08.012.U. (16.08)
BL2010-623	Amends official street and alley acceptance and maintenance map (Special)
BL2010-624	Abandons a 10-foot public utility drainage easement (Special)
BL2010-625	Authorizes the acceptance of certain easements for stormwater projects (Special)
BL2010-626	Amends official zoning map (Special)
BL2010-627	Amends official zoning map (Special)
BL2010-628	Amends official zoning map (Special)
Amdt. 1	Renumbers § 7 as § 8; adds § 7 to Ord. BL2010-628 (Special)
BL2010-629	Amends official zoning map (Special)
Amdt. 1	Adds §§ 4, 5 to Ord. BL2010-629 (special)
BL2010-630	Amends official zoning map (Special)
BL2010-631	(Withdrawn)
BL2010-632	Amends official zoning map (Special)
BL2010-633	Amends official zoning map (Special)
BL2010-634	Adds §§ 17.16.110.A.5., 17.16.210.A.4. (17.16)
Amdt. 1	Amends §§ 17.16.110.A.5., 17.16.210.A.4. (17.16)
BL2010-635	Amends §§ 17.04.060, 17.08.030; adds § 17.16.110.B. (17.04, 17.08, 17.16)
BL2010-636	(Withdrawn)
BL2010-637	(Withdrawn)
BL2010-638	(Withdrawn)
BL2010-639	Amends § 15.64.220.B. (15.64)
BL2010-640	Amends official street and alley acceptance and maintenance map (Special)
BL2010-641	(Withdrawn)
BL2010-642	Amends §§ 2.76.130, 2.80.090, 2.84.120, 2.92.120, 16.12.220, 16.12.240, 16.16.400, 16.16.480, 16.20.250, 16.20.260, 16.24.650, 16.28.110, 16.28.140 (2.76, 2.80, 2.84, 2.92, 16.12, 16.16, 16.20, 16.24, 16.28)
BL2010-643	Declares surplus and approves the disposition of certain parcels of real property (Special)
BL2010-644	Authorizes to install, construct, and maintain an aerial and underground encroachment over the public sidewalk (Special)
BL2010-645	Amends Ord. 95-1379 and approves an extension to cable television franchise (Special)
BL2010-646	Abandons a 19.5 foot public utility easement, a 20 foot sanitary sewer easement and 4,491.74 total square foot public utility easement (Special)
BL2010-647	Amends § 17.08.030; adds § 17.16.090.E.; renumbers § 17.16.090.E., F. as F., G. (17.08, 17.16)
Amdt. 1	Amends § 17.16.090.E. (17.16)
BL2010-648	Adds § 17.32.040.BB. (17.32)
Amdt. 1	Amends § 17.32.040.BB. (17.32)
Amdt. 2	Amends § 17.32.040.BB. (17.32)
BL2010-649	Amends § 6.80.450 (6.80)
BL2010-650	Adds §§ 12.44.070, 13.40.070 (12.44, 13.40)
BL2010-651	Adds § 16.24.230.K.6.—8. (16.24)
BL2010-652	Amends § 16.24.380.B. (16.24)
BL2010-653	Authorizes metropolitan government to participate with Regent Highpoint LLC to provide public sewer service (Special)
BL2010-654	Authorizes acceptance or acquisition of property by negotiation or condemnation for the purpose of acquiring easements for use in public projects (Special)
BL2010-655	Amends official street and alley acceptance and maintenance map (Special)
BL2010-656	Amends official street and alley acceptance and maintenance map (Special)
BL2010-657	Amends official street and alley acceptance and maintenance map (Special)
BL2010-658	(Withdrawn)
BL2010-659	(Withdrawn)
BL2010-660	(Withdrawn)
BL2010-661	Amends official zoning map (Special)
BL2010-662	(Withdrawn)
BL2010-663	Amends official zoning map (Special)
BL2010-664	Amends official zoning map (Special)

Ordinance Number	Disposition
Amdt. 1	Repeals §§ 4.1 and 4.2 to Ord. BL2010-664 (Special)
BL2010-665	(Withdrawn)
BL2010-666	Amends official zoning map (Special)
BL2010-667	(Withdrawn)
BL2010-668	Amends official zoning map (Special)
BL2010-669	(Withdrawn)
BL2010-670	Amends official zoning map (Special)
BL2010-671	Amends official zoning map (Special)
BL2010-672	Amends official zoning map (Special)
BL2010-673	Amends official zoning map (Special)
BL2010-674	(Withdrawn)
BL2010-675	Amends official zoning map (Special)
Amdt. 1	Adds § 4 to Ord. BL2010-675 (Special)
BL2010-676	Approves a donation agreement between Rhonda A. Martocci and the Metropolitan Government of Nashville and Davidson County for the donation of one Tennessee Walking Horse, The Autobahn (Special)
BL2010-677	Repeals Ord. BL2009-453; abandons a 21 inch sanitary sewer line and easement and accepts a relocated 21 inch sanitary sewer line and easement and three manholes (Special)
BL2010-678	Amends §§ 15.04.010—15.04.440, 15.60.010—15.60.465 (15.04, 15.60)
BL2010-679	Adds § 16.16.230.B.; renumbers § 16.16.230.B.—G. as C.—H.; adds § 16.16.260.E.; renumbers § 16.16.260.E.—G. as F.—H. (16.16)
BL2010-680	Approves a license agreement between Vanderbilt University Medical Center and The Metropolitan Government of Nashville and Davidson County for certain real property (Special)
BL2010-681	Approves a contract between the Metropolitan Government of Nashville and Davidson County and the Tennessee Sheriffs' Association to provide enhanced victim notification services (Special)
BL2010-682	(Withdrawn)
BL2010-683	Budget ordinance for fiscal year 2011 (Special)
BL2010-684	Establishes tax levy in the General Services District for 2010—2011 (Special)
BL2010-685	Adds §§ 6.74.010—6.74.500 (6.74)
Amdt. 1	Amends § 6.74.030.A. (6.74)
Amdt. 2	Amends § 6.74.025.D.1.c.; repeals § 6.74.320.B.; renumbered § 6.74.320 C.—F. as B.—E.; amends 6.74.320.A. (6.74)
Amdt. 3	Amends § 6.74.320.A. (6.74)
BL2010-686	Adds § 5.04.090 (5.04)
BL2010-687	Amends §§ 2.56.500—2.56.570 (2.56)
BL2010-688	Adopts capital improvements budget and program 2010—2011 through 2015—2016 (Special)
BL2010-689	Waives first one thousand dollars of fees for building permits for repairs or rebuilding when sought for repairing or rebuilding property damaged as a result of severe weather from May 1 to May 2, 2010 if permits obtained on or before July 30, 2010 (Special)
BL2010-690	Repeals §§ 2.124.010—2.124.050 (2.124)
BL2010-691	(Failed)
BL2010-692	Authorizes Director of Parks and Recreation to accept, execute and record an agreement for grant of easement (Special)
BL2010-693	Amends official street and alley acceptance and maintenance map (Special)
BL2010-694	(Withdrawn)
BL2010-695	Adds § 5.20.090 (5.20)
BL2010-696	Amends official street and alley acceptance and maintenance map (Special)
BL2010-697	Amends official street and alley acceptance and maintenance map (Special)
BL2010-698	Amends official zoning map (Special)
Amdt. 1	Repeals § 3 and add §§ 4—6 to Ord. BL2010-698 (Special)
BL2010-699	(Failed)
BL2010-700	Amends official zoning map (Special)
BL2010-701	Amends official zoning map (Special)
BL2010-702	Amends official zoning map (Special)
BL2010-703	Amends official zoning map (Special)
BL2010-704	Amends official zoning map (Special)
BL2010-705	Amends official zoning map (Special)
BL2010-706	Amends official zoning map (Special)
BL2010-707	Amends official zoning map (Special)
BL2010-708	Amends official zoning map (Special)
BL2010-709	(Withdrawn)
BL2010-710	Adds § 7.08.090.F. (7.08)
BL2010-711	Abandons a 20-foot water and sanitary sewer easement (Special)
BL2010-712	Abandons a 10-foot public utility easement (Special)
BL2010-713	Amends Ord. BL2010-689 to extend the deadline for waiver of permit fees when obtaining a permit for repairing or rebuilding property damaged as result of the May 2010 flooding (Special)
Amdt. 1	Amends § 1 to Ord. BL2010-713 (Special)
BL2010-714	Amends § 7.08.090.E. (7.08)
BL2010-715	Adds §§ 6.42.010—6.42.040 (6.42)
BL2010-716	(Withdrawn)
BL2010-717	(Withdrawn)
BL2010-718	Repeals §§ 10.20.010—10.20.500; adds §§ 10.20.010—10.20.400 (10.20)

Ordinance Number	Disposition
Amdt. 1	Amends § 10.20.220.E.; adds § 10.20.500 (10.20)
Amdt. 2	Amends §§ 10.20.100.A, 10.20.220.E., 10.20.220.G. (10.20)
BL2010-719	Approves amendments to agreements between the Metropolitan Government of Nashville and Davidson County and the State of Tennessee, Department of Environment and Conservation, concerning maintenance of closed solid waste facilities (Special)
BL2010-720	Authorizes the Industrial Development Board to negotiate and accept payments in lieu of ad valorem taxes with respect to LKQ Corporation/Keystone Automotive (Special)
BL2010-721	Approves a lease agreement between the State of Tennessee and the Metropolitan Government for use of portions of the facilities located on campus of the Tennessee Preparatory School (Special)
BL2010-722	Accepts a donation of funds and vehicles to the Metropolitan Government of Nashville and Davidson County by Volkswagen Group of America, Inc., for the use and benefit of the Department of General Services (Special)
BL2010-723	Authorizes the Metropolitan Government to participate with John Ring to provide public sewer service in Williamson County to Fountainbrooke, Section 10 Property (Special)
BL2010-724	Amends official street and alley acceptance and maintenance map (Special)
BL2010-725	Amends § 17.40.740.C. (17.40)
BL2010-726	Appropriates $200,000.00 to the Nashville Convention & Visitors Bureau to assist in post-flood tourism development and promotion efforts in the Music Valley area (Special)
BL2010-727	Appropriates and designates funds and hotel occupancy tax revenues to Gaylord Entertainment Co. to assist in flood recovery efforts of the Grand Ole Opry Housing resulting from the May 2010 flood (Special)
BL2010-728	Accepts donation from Police Explorers, Post 911 to the Metropolitan Government of Nashville and Davidson County for the use and benefit of the Metropolitan Nashville Police Department (Special)
BL2010-729	Amends § 5.24.010 (5.24)
BL2010-730	Approves a license agreement between the Metropolitan Government of Nashville and Davidson County and the Tennessee Emergency Management Agency for the use of space on Cane Ridge communications tower (Special)
BL2010-731	Appropriates an amount not to exceed $200,000.00 from the unappropriated fund balance of the general fund of the general services district to the department of water and sewerage services (Special)
Amdt. 1	Adds new § 5 and renumbers existing sections accordingly of Ord. BL2010-731 (Special)
Amdt. 2	Amends § 2 of Ord. BL2010-731 (Special)
BL2010-732	Approves Tennessee Code Annotated Section 67-5-606(c) which permits proration of the annual personal property tax assessments of certain personal property affected by a disaster certified by the Federal Emergency Management Agency ("FEMA") (Special)
BL2010-733	(Withdrawn)
BL2010-734	Adds § 12.44.075 (12.44)
BL2010-735	Amends § 16.24.330.P. (16.24)
Amdt. 1	Amends § 16.24.330.P. (16.24)
BL2010-736	Amends official zoning map (Special)
BL2010-737	Amends official zoning map (Special)
BL2010-738	Amends official zoning map (Special)
BL2010-739	(Withdrawn)
BL2010-740	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2010-740 (Special)
BL2010-741	Amends official zoning map (Special)
BL2010-742	(Withdrawn)
BL2010-743	Amends official zoning map (Special)
BL2010-744	Amends official zoning map (Special)
BL2010-745	Amends § 17.08.030 (17.08)
BL2010-746	(Withdrawn)
BL2010-747	Amends § 7.16.030 (7.16)
BL2010-748	Amends §§ 12.36.110, 12.84.020.A.44. (12.36, 12.84)
BL2010-749	Amends §§ 6.81.005, 6.81.010; renumbers § 6.81.010 as 6.81.015; amends 6.81.180(tit.) (6.81)
BL2010-750	Authorizes the Industrial Development Board of The Metropolitan Government of Nashville and Davidson County to negotiate and accept payments in lieu of ad valorem taxes with respect to HealthSpring, Inc. (Special)
Amdt. 1	Amends Ord. BL2010-750 (Special)
BL2010-751	Amends § 1.01.010 (1.01)

Ordinance Number	Disposition
BL2010-752	Amends the Official Street and Alley Acceptance and Maintenance Map for the Metropolitan Government of Nashville and Davidson County, by abandoning a portion of McGavock Street (Proposal No. 2010M-010AB-001) (Special)
BL2010-753	(Withdrawn)
BL2010-754	(Withdrawn)
BL2010-755	Approves a Memorandum of Understanding between the Metropolitan Government of Nashville and Davidson County, by and through the Metropolitan Nashville Police Department, and the International Association of Chiefs of Police, regarding participation in an officer injury study (Special)
BL2010-756	Authorizes the acquisition of property by negotiation or condemnation for use in public projects of the Metropolitan Government, initially with relation to Project Number 10-R-1, 28th Avenue/31st Avenue Connector, from Park Plaza to the south side of the Nashville and Western Railroad tracks (Proposal No. 2010M-008PR-001) (Special)
BL2010-757	Authorizing the acceptance or acquisition of easements by negotiation or condemnation for the purpose of construction of sidewalks and associated improvements along the west side of Oakwood Avenue between Slaydon Avenue and Bullock Avenue, Proposal No. 2010M-026ES-001 (Special)
BL2010-758	Amends official zoning map (Special)
BL2010-759	Extends the boundaries of the Urban Services District (Special)
Amdt. 1	Repeals and replaces Exhibit A of Ord. BL2010-759 (Special)
BL2010-760	Amends § 5.20.080 (5.20)
BL2010-761	Adds § 8.04.190 (8.04)
Amdt. 1	Amends § 8.04.190 (8.04)
BL2010-762	Adds § 10.28.050.C.; amends § 10.28.060.D. (10.28)
BL2010-763	(Withdrawn)
BL2010-764	Authorizes The Industrial Development Board of The Metropolitan Government of Nashville and Davidson County to negotiate and accept payments in lieu of ad valorem taxes with respect to Omni Nashville, LLC. (Special)
Amdt. 1	Deletes Ord. BL2010-764, §§ 3, 6 (Special)
BL2010-765	Authorizing the Metropolitan Water Services Department to submit application(s) for grants from the Tennessee Emergency Management Agency to the Metropolitan Government of Nashville and Davidson County for hazard mitigation, and the expenditure of funds and future acquisition of property upon approval of the Metropolitan Council by resolution (Special)
Amdt. 1	Amends Ord. BL2010-765, § 4 (Special)
BL2010-766	Clarifies the status of former employees of the Metropolitan Convention Center Commission (Special)
BL2010-767	Names the Tucker Road Bridge over Whites Creek in honor of Robert Woods (Special)
BL2010-768	(Withdrawn)
BL2010-769	Approves a license agreement between the Metropolitan Nashville Public Schools and the Hickory Hollow Mall Limited Partnership for certain space inside the Hickory Hollow Mall (Proposal No. 2010M-007PR-001) (Special)
BL2010-770	(Withdrawn)
BL2010-771	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2010-771 (Special)
BL2010-772	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2010-772 (Special)
BL2010-773	Amends official zoning map (Special)
BL2010-774	(Withdrawn)
BL2010-775	Amends official zoning map (Special)
BL2010-776	Amends official zoning map (Special)
BL2010-777	Amends official zoning map (Special)
BL2010-778	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2010-778 § 4 (Special)
Amdt. 2	Amends Ord. BL2010-778 § 4 (Special)
BL2010-779	(Withdrawn)
BL2010-780	Amends official zoning map (Special)
Amdt. 1	Amends official zoning map § 3 (Special)
BL2010-781	Amends official zoning map (Special)
BL2010-782	Amends § 17.08.030 (17.08)
BL2010-783	(Withdrawn)
BL2010-784	(Withdrawn)
BL2010-785	Amends official zoning map (Special)
BL2010-786	(Withdrawn)
BL2010-787	Authorizes the exchange of vacant property for the purpose of acquiring land for recreational use by the Metropolitan Government (Proposal No. 2010M-011PR-001) (Special)
BL2010-788	Adds § 16.12.220.D., 16.16.400.D., 16.20.250.D., 16.28.110 (16.12, 16.16, 16.20, 16.28)

Ordinance Number	Disposition
BL2010-789	Adds § 13.08.015.B.; renumbers § 13.08.015.B.—D.; adds § 13.08.015.C.—E. (13.08)
BL2010-790	Continues the current ten percent user surcharge to fund water and sewerage system operations, capital improvements, and debt obligations of the Metropolitan Government related to improvements, alterations and extensions of the water and sewerage systems (Special)
BL2010-791	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, by and through the Department of Public Works, and the Nashville Biltmore LP to establish respective responsibilities pertaining to widening and relocation of three ramps at interchange of I-40 with McCrory Lane in Davidson County and realignment and widening of a portion of McCrory Lane, and funding thereof, and authorizing the execution of the same (Special)
BL2010-792	(Withdrawn)
BL2010-793	Adds §§ 1.01.030.C.—H., 1.24.030.E.; amends §§ 5.32.150, 6.72.500, 6.74.500, 6.80.585.A., 11.26.060, 12.08.170, 12.32.090, 12.40.040.C., 12.40.090.C., 12.41.070.A., 12.42.110, 12.42.190; repeals § 12.54.200.C.; amends §§ 12.84.010, 12.84.020, 12.84.030 (1.01, 1.24, 5.32, 6.72, 6.74, 6.80, 11.26, 12.08, 12.32, 12.40, 12.41, 12.42, 12.54, 12.84)
BL2010-794	Amends §§ 15.64.120, 15.64.160, 15.64.170 (15.64)
BL2010-795	Accepts a contribution in an amount not to exceed $200,000.00 from the Parkes Companies, Inc. (Special)
BL2010-796	Approves an agreement by and between the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Department of Public Works, and CCBCC Operations, LLC (Special)
Amdt. 1	Repeals and replaces Exhibit A of Ord. BL2010-796 (Special)
BL2010-797	Authorizes the Metropolitan Government to participate with Rogers Group, Inc. to improve public sewer service in Davidson County by constructing the Basswood and Cockrill Bend Trunk Sewer Line Relocation Project No: 10-SL-206 (Special)
BL2010-798	Amends §§ 17.04.060, 17.32.050.G.2. (17.04, 17.32)
BL2010-799	Amends official zoning map (Special)
Amdt. 1	Adds § 3 and renumbers existing sections accordingly of Ord. BL2010-799 (Special)
BL2010-800	Amends official zoning map (Special)
Amdt. 1	Adds § 3 and renumbers existing sections accordingly of Ord. BL2010-800 (Special)
BL2010-801	Amends official zoning map (Special)
BL2010-802	Amends official zoning map (Special)
BL2010-803	(Withdrawn)
BL2010-804	Amends official zoning map (Special)
BL2010-805	Amends official zoning map (Special)
Amdt. 1	Adds § 3 and renumbers existing sections accordingly of Ord. BL2010-805 (Special)
BL2010-806	Amends §§ 2.210.010, 2.210.020 (2.210)
BL2010-807	(Withdrawn)
BL2010-808	Adds § 2.222.020.q.(3)(vi) (2.222)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2010-808 (2.222)
BL2010-809	(Withdrawn)
BL2010-810	Adds § 2.196.055 (2.196)
BL2010-811	(Withdrawn)
BL2010-812	Names the Metropolitan Council Chamber in honor of David Scobey (Special)
BL2010-813	Approves a construction agreement with CSX Transportation, Inc. (Special)
BL2010-814	Approves an agreement between Vanderbilt University and the Metropolitan Government of Nashville and Davidson County (Special)
BL2010-815	Authorizes the acquisition of property or easements in relation to project no. 03-D-00500 (Special)
BL2010-816	Authorizes the acceptance or acquisition of easements, proposal no. 2010M-032ES-001 (Special)
BL2010-817	Names the bridge on Old Harding Pike over the Harpeth River in honor and memory of Joseph and Bessie Formosa and Mary Jane McCormac (Special)
BL2010-818	Amends street and alley acceptance and maintenance map (Special)
BL2010-819	Amends street and alley acceptance and maintenance map (Special)
BL2010-820	Adds Ch. 2.78 and § 2.78.010 (2.78)
Amdt. 1	(Failed)
Amdt. 2	Repeals and replaces § 1 of Ord. BL2010-820 (2.78)
BL2010-821	Amends § 2.196.040.B. (2.196)
BL2010-822	(Withdrawn)
BL2010-823	(Withdrawn)
BL2010-824	Amends Ord. BL2010-689 (Special)
BL2010-825	Adds § 12.44.080 (12.44)
Amdt. 1	Amends § 1 of Ord. BL2010-825 (12.44)
BL2010-826	Amends §§ 1.01.010—1.01.050 (1.01)
BL2010-827	(Withdrawn)

Ordinance Number	Disposition
BL2010-828	Authorizes the acquisition of properties or easements, project no. 93-SC-34 (Special)
BL2010-829	Amends street and alley acceptance and maintenance map (Special)
BL2010-830	Amends street and alley acceptance and maintenance map (Special)
BL2010-831	Amends street and alley acceptance and maintenance map (Special)
BL2011-832	Authorizes Bristol Development Group to install, construct, and maintain an underground encroachment for the property located at 1700 State Street, proposal no. 2010M-006EN-001 (Special)
BL2011-833	Names the auditorium at the Howard Office Building in honor of Sonny West (Special)
Amdt. 1	Amends §§ 1, 2 of Ord. BL2011-833 (Special)
BL2011-834	Adds §§ 2.128.060.K., 4.20.050.E., 11.24.110 (2.128, 4.20, 11.24)
Amdt. 1	Amends § 1 of Ord. BL2011-834 (2.128)
BL2011-835	(Withdrawn)
BL2011-836	(Withdrawn)
BL2011-837	(Withdrawn)
BL2011-838	Amends §§ 4.28.010, 4.28.020 (4.28)
Amdt. 1	Amends § 1 of Ord. BL2011-838 (4.28)
BL2011-839	Abandons all public utility easements in connection with project nos. 10-WL-61 and 10-SL-133, 10-SL-165, proposal no. 2010M-029ES-001 (Special)
BL2011-840	(Withdrawn)
BL2011-841	Amends street and alley acceptance and maintenance map (Special)
BL2011-842	Approves an amendment to the lease between the Metropolitan Government and Square Investment Holdings, LP, proposal no. 2011M-002PR-001 (Special)
BL2011-843	Amends street and alley acceptance and maintenance map (Special)
BL2011-844	Amends official zoning map (Special)
BL2011-845	Amends official zoning map (Special)
BL2011-846	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2011-846 (Special)
BL2011-847	Amends official zoning map (Special)
BL2011-848	Amends official zoning map (Special)
BL2011-849	Amends official zoning map (Special)
BL2011-850	Amends official zoning map (Special)
BL2011-851	Amends official zoning map (Special)
BL2011-852	Amends official zoning map (Special)
BL2011-853	Amends official zoning map (Special)
BL2011-854	Amends official zoning map (Special)
BL2011-855	(Withdrawn)
BL2011-856	(Withdrawn)
BL2011-857	(Withdrawn)
BL2011-858	(Withdrawn)
BL2011-859	Amends § 10.20.340 (10.20)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2011-859 (10.20)
BL2011-860	Adopts a proposed plan of services for the extension of the boundaries of the Urban Services District to include certain property located along Highway 70 South (Special)
BL2011-861	Extends Urban Services District boundaries (Charter, App. 1)
BL2011-862	(Withdrawn)
BL2011-863	Amends §§ 7.16.030.A.2., 7.16.050, 7.16.060, 7.16.110.E. (7.16)
BL2011-864	(Withdrawn)
BL2011-865	Amends Ord. 95-1379 and Ord. BL2010-645 approving an extension to cable television franchise (Special)
BL2011-866	Approves an agreement between the metropolitan government and Hospital Corporation of America (Special)
BL2011-867	Approves a construction agreement with CSX Transportation, Inc. (Special)
BL2011-868	Abandons sanitary sewer line and utility easement in connection with project 10-SL-176 (Special)
Amdt. 1	Amends caption and § 1 of Ord. BL2011-868 (Special)
BL2011-869	Repeals §§ 11.28.200—11.28.280; adds §§ 11.28.200—11.28.270 (11.28)
BL2011-870	Amends §§ 6.72.030.D.2., 6.80.545.B.1., D.2. (6.72, 6.80)
BL2011-871	Approves a wire and cable license agreement with Nashville and Eastern Railroad (Special)
BL2011-872	Approves a Memorandum of Understanding between the Metropolitan Government of Nashville and Davidson County, by and through the Mayor's Office of Emergency Management, Clear Channel Communications, Inc., and Warning Systems, Inc., regarding the dissemination of emergency alert messages (Special)
BL2011-873	Abandons sanitary sewer line and easement in connection with project 11-SL-0004 (Special)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2011-873 (Special)
BL2011-874	Abandons sanitary sewer line in connection with project 10-SL-206 (Special)
BL2011-875	Abandons sanitary sewer line in connection with project 10-SL-227 (Special)
BL2011-876	Abandons water main and easement and sanitary sewer and easement (Special)

Ordinance Number	Disposition
BL2011-877	Abandons sanitary sewer line and easement in connection with project 10-SL-232 (Special)
BL2011-878	Amends official zoning map (Special)
Amdt. 1	Adds new § 8 and renumbers existing sections accordingly of Ord. BL2011-878 (Special)
BL2011-879	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2011-879 (Special)
BL2011-880	Amends official zoning map (Special)
BL2011-881	Amends official zoning map (Special)
BL2011-882	(Withdrawn)
BL2011-883	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2011-883 (Special)
BL2011-884	Amends official zoning map (Special)
BL2011-885	Amends official zoning map (Special)
Amdt. 1	Incorporates list or permitted uses and amends §§ 7, 8, 10 of Ord. BL2011-885 (Special)
BL2011-886	Amends official zoning map (Special)
BL2011-887	Amends official zoning map (Special)
BL2011-888	(Withdrawn)
BL2011-889	Amends official zoning map (Special)
BL2011-890	Amends official zoning map (Special)
BL2011-891	Amends official zoning map (Special)
Amdt. 1	Adds new §§ 3 and 4 and renumbers existing sections accordingly of Ord. BL2011-891 (Special)
BL2011-892	Amends official zoning map (Special)
BL2011-893	Amends official zoning map (Special)
BL2011-894	Amends official zoning map (Special)
BL2011-895	Amends official zoning map (Special)
Amdts. 1—3	Amends § 1, sketch and list of parcels, of Ord. BL2011-895 (Special)
BL2011-896	Amends § 17.37.010 (17.37)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2011-896 (17.37)
BL2011-897	Amends §§ 17.04.060, 17.12.030 (17.04, 17.12)
BL2011-898	Amends §§ 17.04.060, 17.08.010.B.3., D., E., 17.08.020.B.3., D., E., 17.08.030; adds § 17.12.020.D., Table 17.12.020.D.; amends Table 17.12.030.A., Table 17.12.030.B., Table 17.12.020.B.1., §§ 17.12.035.A., 17.16.080, 17.16.090.G.5., 17.16.190.E.2., 17.20.040, 17.20.080, Table 17.24.230, §§ 17.28.030.A.3., 17.28.030.B.1., 17.28.040.E., 17.32.050.H.2., 17.32.110, 17.32.120, 17.40.670 (17.04, 17.08, 17.12, 17.16, 17.20, 17.24, 17.28, 17.32, 17.40)
BL2011-899	(Withdrawn)
BL2011-900	Amends §§ 17.04.060, 17.08.030; adds § 17.16.030.F. (17.04, 17.08, 17.16)
Amdt. 1	Repeals and replaces § 3 of Ord. BL2011-900 (17.16)
BL2011-901	(Withdrawn)
BL2011-902	Amends Charter, Appendix 2, redistricting the councilmanic districts and revising the school districts (Charter, App. 2)
Amdt. 1	Adds attached written description of the councilmanic districts and the school districts of Ord. BL2011-902 (Charter, App. 2)
BL2011-903	Adds § 15.64.230 (15.64)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2011-903 (15.64)
BL2011-904	Transfers the franchise granted to DukeNet Communications, LLC to reflect its new investor and new name of the franchise holder, DukeNet OpCo, LLC, which shall continue to operate as DukeNet Communications (Special)
BL2011-905	Approves a maintenance and license agreement between the Metropolitan Government of Nashville and Davidson County and Tennessee State University, Meharry Medical College, and Jefferson Street United Merchants Partnership in relation to maintenance of streetscape improvements along I-40 at Jefferson Street and 28th Avenue North (Special)
BL2011-906	Amends §§ 1.01.010—1.01.050 (1.01)
BL2011-907	(Withdrawn)
BL2011-908	Accepts a donation of one hundred bicycles to the Metropolitan Government of Nashville and Davidson County (Special)
BL2011-909	Authorizes the acquisition of property for the purpose of acquiring easements, project no. 08-WG-0097 (Special)
BL2011-910	Authorizes the acquisition of certain right-of-way easements and property rights, project no. 2011-M-1 (Special)
BL2011-911	Authorizes the acquisition of certain right-of-way easements and property rights, project no. 2011-M-2 (Special)
BL2011-912	Adds § 2.20.130 (2.20)
BL2011-913	Budget ordinance for fiscal year 2012 (Special)
BL2011-914	Establishes tax levy in the General Services District for 2011—2012 (Special)

Ordinance Number	Disposition
BL2011-915	Approves lease between the Metropolitan Government of Nashville and Davidson County and the Center for Charter School Excellence in Tennessee for the use of improved property at 217 South 10th Street (Special)
BL2011-916	Amends §§ 12.41.010—12.41.110 (12.41)
Amdt. 1	Amends §§ 12.41.010, 12.41.020, 12.41.070 of Ord. BL2011-916 (12.41)
BL2011-917	Amends Ord. BL2007-1460 (Special)
BL2011-918	(Withdrawn)
BL2011-919	Accepts a donation of real property being all of Parcel 319 and a portion of Parcel 174 on Tax Map 164, land to be donated for the use and benefit of the Metropolitan Board of Education (Special)
BL2011-920	Amends official zoning map (Special)
BL2011-921	Adopts capital improvements budget and program 2011—2012 through 2016—2017 (Special)
Amdts. 1—22	Adds projects to be funded in fiscal year 2011—2012 (Special)
BL2011-922	Amends § 17.04.060; adds § 17.32.145; amends § 17.40.170.B. (17.04, 17.32, 17.40)
BL2011-923	(Withdrawn)
BL2011-924	(Failed)
BL2011-925	Amends official zoning map (Special)
BL2011-926	(Defeated)
BL2011-927	Amends official zoning map (Special)
BL2011-928	Amends official zoning map (Special)
BL2011-929	Amends official zoning map (Special)
BL2011-930	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2011-930 (Special)
BL2011-931	Amends official zoning map (Special)
BL2011-932	(Withdrawn)
BL2011-933	Amends official zoning map (Special)
Amdt. 1	Adds new § 4 and renumbers existing sections accordingly of Ord. BL2011-933 (Special)
BL2011-934	Amends official zoning map (Special)
BL2011-935	(Failed)
BL2011-936	Amends official zoning map (Special)
BL2011-937	Amends official zoning map (Special)
Amdt. 1	Adds new § 4 and renumbers existing sections accordingly of Ord. BL2011-937 (Special)
BL2011-938	Adds § 2.32.060 (2.32)
BL2011-939	Amends § 10.68.010 (10.68)
BL2011-940	Amends §§ 15.64.010, 15.64.170 (15.64)
BL2011-941	Authorizes the Industrial Development Board of the Metropolitan Government of Nashville and Davidson County to negotiate and accept payments in lieu of ad valorem taxes with respect to Carlex Glass America L.L.C.'s Acquisition and Operation of the Nashville Glass Plant (Special)
BL2011-942	Approves a utility agreement between the Metropolitan Government of Nashville and Davidson County and BellSouth Telecommunications, Inc. d/b/a AT&T Tennessee (Special)
BL2011-943	Authorizes Omni Nashville, LLC to install, construct and maintain an underground encroachment in the rights-of-way of 4th Avenue South and 5th Avenue South (Special)
BL2011-944	Approves amendment 2 to a contract between the metropolitan government and Ovations Food Services, LP (Special)
BL2011-945	Abandons easement rights in connection with Metro Water Services project 11-SL-11 (Special)
BL2011-946	Authorizes the director of public property, or his designee, to accept, execute and record a quitclaim deed from Academy Square, Inc. to the metropolitan government (Special)
BL2011-947	Authorizes the acquisition of certain easements and property rights, project no. 10-SG-220 (Special)
BL2011-948	Amends official zoning map (Special)
BL2011-949	Amends official zoning map (Special)
BL2011-950	Authorizes the Industrial Development Board of the Metropolitan Government of Nashville and Davidson County to negotiate and accept payments in lieu of ad valorem taxes with respect to Standard Candy Company (Special)
BL2011-951	(Withdrawn)
BL2011-952	(Withdrawn)
BL2011-953	Amends §§ 16.20.140, 16.20.150 (16.20)
BL2011-954	Amends official street and alley acceptance and maintenance map (Special)
BL2011-955	Amends §§ 1.01.010—1.01.050 (1.01)
BL2011-956	(Withdrawn)
BL2011-957	(Withdrawn)
BL2011-958	Abandons water service lines and sanitary sewer lines in connection with project 10-SL-149 (Special)
BL2011-959	Authorizes the execution and filing with the Register of Deeds a Notice of Land Use Restriction for the Old Due West Landfill Site (Special)

Ordinance Number	Disposition
BL2011-960	Abandons existing drainage easement on a portion of property located at 830 Gale Lane, west of Franklin Pike (Special)
BL2011-961	Amends official street and alley acceptance and maintenance map (Special)
BL2011-962	Amends § 6.04.035.A., C. (6.04)
BL2011-963	Names the bridge on Newsom Station Road over the Harpeth River in honor and memory of Danny Tomlinson (Special)
BL2011-964	Approves the disposition of a certain parcel of real property (Special)
BL2011-965	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, by and through the Department of Public Works, and Creative Outdoor Advertising of America to provide a public right-of-way recycling and waste collection system within the USD (Special)
BL2011-966	Approves a lease agreement with the State of Tennessee, Department of Transportation (Special)
BL2011-967	Authorizes Innophos, Inc. to install, construct and maintain an underground and aerial encroachment within the right-of-way of Centennial Boulevard (Special)
BL2011-968	Authorizes Nashville Data Link, Inc. to install, construct and maintain an underground and aerial encroachment at Murfreesboro Road to Elm Hill Pike to Orr Avenue to Rundle Avenue to Fesslers Lane (Special)
BL2011-969	Approves a lease agreement with the State of Tennessee, Department of Transportation (Special)
BL2011-970	Approves and accepts a contribution in the amount of $50,000 from Centex Homes for road improvements at the intersection of Hamilton Church Road and Mt. View Road (Special)
BL2011-1	(Withdrawn)
BL2011-2	Amends § 5.16.060.D. (5.16)
BL2011-3	Adds § 15.64.170.B.f. (15.64)
Amdt. 1	Deletes § 2 to Ord. BL2011-3 and renumbers § 3 as § 2 (15.64)
BL2011-4	(Withdrawn)
BL2011-5	Names the Nashville Municipal Auditorium (Special)
BL2011-6	Authorizes the acquisition of property (Special)
BL2011-7	Abandons sanitary sewer line and easements (Special)
BL2011-8	Abandons and accepts combination sewer main (Special)
BL2011-9	Authorizes agreement with First Citizens National Bank (Special)
BL2011-10	Approves two agreements with Vanderbilt University (Special)
BL2011-11	Abandons sanitary sewer line and easement (Special)
BL2011-12	Amends official street and alley acceptance and maintenance map (Special)
BL2011-13	Amends official street and alley acceptance and maintenance map (Special)
BL2011-14	Amends official street and alley acceptance and maintenance map (Special)
BL2011-15	Amends official street and alley acceptance and maintenance map (Special)
BL2011-16	(Withdrawn)
BL2011-17	Amends official zoning map (Special)
BL2011-18	Amends official zoning map (Special)
Amdt. 1	Adds new § 4 and renumbers existing sections accordingly of Ord. BL2011-18 (Special)
BL2011-19	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2011-19 by substituting new sketch (Special)
BL2011-20	Amends official zoning map (Special)
BL2011-21	(Withdrawn)
BL2011-22	Amends official zoning map (Special)
BL2011-23	Amends official zoning map (Special)
BL2011-24	Amends official zoning map (Special)
BL2011-25	(Withdrawn)
BL2011-26	(Withdrawn)
BL2011-27	Amends Tables 17.12.020.A. and 17.12.020.B. (17.12)
BL2011-28	(Withdrawn)
BL2011-29	(Withdrawn)
BL2011-30	(Withdrawn)
BL2011-31	Amends § 2.222.020.s. (2.222)
BL2011-32	(Withdrawn)
BL2011-33	Amends Ch. 4.44 (title) and §§ 4.44.010—4.44.050 (4.44)
Amdt. 1	Repeals § 3 and renumbers § 4 as § 5; adds new §§ 3 and 4 of Ord. BL2011-33 (4.44)
BL2011-34	Amends §§ 10.28.040, 10.28.060.C. (10.28)
BL2011-35	Amends § 5.24.010 (5.24)
BL2011-36	Authorizes the acquisition of easements (Special)
BL2011-37	Property tax relief program for low-income elderly residents for 2011—2012 (Special)
BL2011-38	Approves loan agreement and loan of artwork (Special)
BL2011-39	Approves contract between metropolitan government and United Road Towing (Special)

Ordinance Number	Disposition
Amdt. 1	Amends § 1 of Ord. BL2011-39 by substituting new contract (Special)
BL2011-40	Amends § 5.14.020.A. (5.14)
BL2011-41	Amends § 7.16.120 (7.16)
BL2011-42	Authorizes utility relocation contract no. 7822 (Special)
Amdt. 1	Repeals and replaces fourth whereas clause of Ord. 2011-42 (Special)
BL2011-43	Authorizes acquisition of easement (Special)
BL2011-44	Authorizes acquisition of easement (Special)
BL2011-45	Abandons water main and sanitary sewer line (Special)
BL2011-46	Authorizes acquisition of easement (Special)
BL2011-47	Amends §§ 8.12.020, 17.04.060, 17.08.030, 17.16.250 (8.12, 17.04, 17.08, 17.16)
Amdt. 1	Amends § 4 to Ord. BL2011-47 (17.16)
BL2011-48	(Withdrawn)
BL2011-49	(Withdrawn)
BL2011-50	Authorizes the extension of the current medical plan contracts for up to two years (Special)
BL2011-51	Approves two agreements relating to the acquisition of property (Special)
BL2011-52	Approves contribution from Hillsboro Plaza Retail Partners III, LLC and Davis Street Land Company of Tennessee, L.L.C. (Special)
BL2011-53	Authorizes the acceptance of a right-of-entry and easement (Special)
BL2011-54	Authorizes the acquisition of a property or easement (Special)
BL2011-55	Amends official street and alley acceptance and maintenance map (Special)
BL2011-56	(Withdrawn)
BL2011-57	Names the Madison Police Precinct (Special)
BL2011-58	Authorizes the industrial development board to negotiate and accept payments in lieu of ad valorem taxes (Special)
BL2011-59	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Nashville Fire Department, Division of Emergency Medical Services, and Bar Education, Inc. (Special)
BL2011-60	Amends §§ 1.01.010—1.01.050 (1.01)
BL2011-61	Amends official street and alley acceptance and maintenance map (Special)
BL2011-62	Amends official street and alley acceptance and maintenance map (Special)
BL2011-63	Authorizes the abandonment of 102 feet of storm sewer and a 10 foot public utility and drainage easement (Special)
BL2011-64	(Withdrawn)
BL2011-65	Amends § 11.12.070.B.2. (11.12)
BL2011-66	Amends official zoning map (Special)
BL2011-67	Amends official zoning map (Special)
BL2011-68	Amends official zoning map (Special)
BL2011-69	Amends official zoning map (Special)
BL2011-70	Amends official zoning map (Special)
BL2011-71	Amends official zoning map (Special)
BL2011-72	Amends official zoning map (Special)
BL2011-73	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2011-73 (Special)
BL2011-74	Amends official zoning map (Special)
BL2011-75	Amends official zoning map (Special)
Amdt. 1	Adds new § 3 and renumbers existing sections accordingly of Ord. BL2011-75 (Special)
BL2011-76	Amends official zoning map (Special)
BL2011-77	Amends official zoning map (Special)
BL2011-78	Amends official zoning map (Special)
BL2011-79	Amends official zoning map (Special)
BL2011-80	Amends § 17.16.030.E. (17.16)
BL2011-81	Amends official zoning map (Special)
BL2011-82	Adds §§ 10.90.010—10.90.030 (10.90)
BL2011-83	(Withdrawn)
BL2011-84	Authorizes the acquisition of easements (Special)
BL2011-85	Authorizes the acquisition of easements (Special)
BL2011-86	Abandons sanitary sewer line and public utility easement (Special)
BL2011-87	Authorizes Trevecca Nazarene University to install, construct and maintain an underground encroachment (Special)
BL2012-88	Adds § 17.40.420.D.8. (17.40)
BL2012-89	Amends official street and alley acceptance and maintenance map (Special)
BL2012-90	Amends official street and alley acceptance and maintenance map (Special)
BL2012-91	Adds § 2.04.030.E. (2.04)
BL2012-92	Amends § 17.40.650.B., E. (17.40)
Amdt. 1	Amends §§ 1 and 2 of Ord. BL2012-92 (17.40)
BL2012-93	Amends Ord. BL2011-950 (Special)
BL2012-94	Abandons water main and easement (Special)
BL2012-95	Amends official street and alley acceptance and maintenance map (Special)
BL2012-96	Amends official zoning map (Special)
BL2012-97	Amends official zoning map (Special)
BL2012-98	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2012-98 (Special)
BL2012-99	Amends official zoning map (Special)

Ordinance Number	Disposition
Amdt. 1	Deletes and replaces § 4 of Ord. BL2012-99 (Special)
BL2012-100	Amends official zoning map (Special)
BL2012-101	Amends official zoning map (Special)
BL2012-102	Amends official zoning map (Special)
BL2012-103	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2012-103 (Special)
BL2012-104	(Withdrawn)
BL2012-105	Amends official zoning map (Special)
BL2012-106	Amends official zoning map (Special)
Amdt. 1	Adds new § 4 and renumbers existing sections accordingly of Ord. BL2012-106 (Special)
BL2012-107	(Withdrawn)
BL2012-108	Names the General Sessions Courtroom 1A located in the Justice A.A. Birch Building in honor of Judge Leon Ruben (Special)
BL2012-109	(Withdrawn)
BL2012-110	Amends §§ 2.222.030.B.1., C. (2.222)
BL2012-111	Amends § 12.40.020 (12.40)
BL2012-112	Authorizes acquisition of two easements (Special)
BL2012-113	(Withdrawn)
BL2012-114	Amends § 7.20.010.A. (7.20)
BL2012-115	Adds § 10.18.045 (10.18)
BL2012-116	Accepts payments in lieu of ad valorem taxes (Special)
BL2012-117	Amends § 17.08.030 (17.08)
BL2012-118	Accepts payments in lieu of ad valorem taxes (Special)
BL2012-119	Authorizes the execution and filing with the Register of Deeds a Notice of Land Use Restrictions (Special)
BL2012-120	Authorizes the execution and filing with the Register of Deeds a Notice of Land Use Restrictions (Special)
BL2012-121	(Withdrawn)
BL2012-122	Amends Ord. 95-1379, Ord. BL2010-645 and Ord. BL2011-865 (Special)
BL2012-123	Amends official street and alley acceptance and maintenance map (Special)
BL2012-124	Approves abandonment of four stormwater easements (Special)
BL2012-125	(Withdrawn)
BL2012-126	(Withdrawn)
BL2012-127	Amends §§ 15.64.040, 15.64.050, 15.64.090 (15.64)
BL2012-128	Names police gun range (Special)
BL2012-129	Approves license agreement with Electric Transportation Engineering Corporation d/b/a/ Ecotality North America (Special)
Amdt. 1	Substitutes attached Exhibits A and B of Ord. BL2012-129 (Special)
BL2012-130	Amends §§ 1.01.010—1.01.050 (1.01)
BL2012-131	Authorizes the acceptance and record of an easement (Special)
BL2012-132	Abandons easement rights (Special)
BL2012-133	Approves agreement with The Key Alliance (TKA) (Special)
BL2012-134	Amends official zoning map (Special)
BL2012-135	Amends official zoning map (Special)
BL2012-136	Amends official zoning map (Special)
BL2012-137	Amends official zoning map (Special)
BL2012-138	Amends official zoning map (Special)
BL2012-139	Amends official zoning map (Special)
BL2012-140	Amends official zoning map (Special)
BL2012-141	Amends official zoning map (Special)
BL2012-142	Amends § 17.37.010 (17.37)
BL2012-143	Amends official zoning map (Special)
BL2012-144	Abandons easement rights (Special)
BL2012-145	Approves lease agreement (Special)
Amdt. 1	Deletes and substitutes Exhibit 1 of Ord. BL2012-145 (Special)
BL2012-146	Approves agreement with the Nashville Downtown Partnership (Special)
BL2012-147	Authorizes public sewer extension (Special)
BL2012-148	Abandons and accepts water main easement (Special)
BL2012-149	Abandons public utility and drainage easement (Special)
BL2012-150	Abandons water and sewer easement (Special)
BL2012-151	Amends official zoning map (Special)
BL2012-152	Amends official zoning map (Special)
BL2012-153	(Withdrawn)
BL2012-154	Budget ordinance for fiscal year 2013 (Special)
BL2012-155	Establishes tax levy in the General Services District for 2012—2013 (Special)
BL2012-156	Amends §§ 5.12.050, 5.12.120, 5.16.050.B., 5.32.190.A., 7.12.040; repeals § 5.12.110; adds § 5.16.160 (5.12, 5.16, 5.32, 7.12)
BL2012-157	Property tax relief program for low-income elderly residents for 2012—2013 (Special)
BL2012-158	Amends §§ 17.04.060, 17.08.030; adds § 17.16.070.I.; renumbers § 17.16.070.I.—T. as J.—U. (17.04, 17.08, 17.16)
Amdt. 1	Amends §§ 2 and 3 of Ord. BL2012-158 (17.08, 17.16)
BL2012-159	Adopts capital improvements budget and program 2012—2013 through 2017—2018 (Special)
Amdts. 1—90	Amends projects to be funded of Ord. BL2012-159 (Special)
BL2012-160	Amends § 5.16.060.D. (5.16)
BL2012-161	(Withdrawn)
BL2012-162	(Withdrawn)

Ordinance Number	Disposition
BL2012-163	Authorizes the metropolitan department of law to compromise and settle its claims against XO Communications Services, LLC for unpaid right-of-way franchise fees (Special)
BL2012-164	Approves clinical affiliation agreement with Volunteer State Community College (Special)
BL2012-165	Approves lease agreement with Nashville Soccer, LLC (Special)
BL2012-166	Authorizes participation agreement with Southern Land Company (Special)
BL2012-167	Authorizes participation agreement with 40th Avenue Church of Christ (Special)
BL2012-168	Amends official street and alley acceptance and maintenance map (Special)
BL2012-169	Amends official street and alley acceptance and maintenance map (Special)
BL2012-170	Amends official street and alley acceptance and maintenance map (Special)
BL2012-171	Amends official street and alley acceptance and maintenance map (Special)
BL2012-172	Amends official street and alley acceptance and maintenance map (Special)
BL2012-173	Amends official zoning map (Special)
BL2012-174	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2012-174 (Special)
BL2012-175	(Withdrawn)
BL2012-176	Amends official zoning map (Special)
BL2012-177	Amends official zoning map (Special)
BL2012-178	Amends official zoning map (Special)
BL2012-179	(Withdrawn)
BL2012-180	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2012-180 (Special)
BL2012-181	Amends § 17.40.400.A. (17.40)
Amdt. 1	Amends second whereas clause and § 1 of Ord. BL2012-181 (17.40)
BL2012-182	Amends §§ 17.04.060, 17.08.030; adds §§ 17.16.130.B., 17.32.040.CC. (17.04, 17.08, 17.16, 17.32)
Amdt. 1	Amends § 3 of Ord. BL2012-182 (17.16)
Amdt. 2	Amends § 3 of Ord. BL2012-182 (17.16)
BL2012-183	Amends Table 17.12.020.A., Table 17.12.020.D., § 17.12.060.F.1., 17.12.070 (17.12)
Amdt. 1	Amends §§ 1 and 3 of Ord. BL2012-183 (17.12)
BL2012-184	Amends official street and alley acceptance and maintenance map (Special)
BL2012-185	Authorizes acquisition of sewer line easement (Special)
BL2012-186	Authorizes donation of a floating dock (Special)
BL2012-187	Declares surplus and approves the disposition of certain parcels of real property (Special)
BL2012-188	Names a private road (Special)
BL2012-189	Approves sponsorship agreement with Fifth Third Bank (Special)
BL2012-190	Amends official zoning map (Special)
BL2012-191	Amends official zoning map (Special)
BL2012-192	Amends official zoning map (Special)
BL2012-193	Amends official zoning map (Special)
BL2012-194	Amends official zoning map (Special)
BL2012-195	Amends official zoning map (Special)
BL2012-196	Amends official zoning map (Special)
BL2012-197	Amends official zoning map (Special)
BL2012-198	Amends official zoning map (Special)
BL2012-199	Amends official zoning map (Special)
BL2012-200	Amends official zoning map (Special)
BL2012-201	Amends official zoning map (Special)
BL2012-202	Amends official zoning map (Special)
Amdt. 1	Adds § 4 and renumbers existing sections accordingly of Ord. BL2012-202 (Special)
BL2012-203	(Withdrawn)
BL2012-204	Amends §§ 17.04.060, 17.08.030; adds § 17.16.300.B. (17.04, 17.08, 17.16)
Amdt. 1	Amends § 3 of Ord. BL2012-204 (17.16)
BL2012-205	(Withdrawn)
BL2012-206	(Withdrawn)
BL2012-207	Abandons easements (Special)
BL2012-208	Abandons eight drainage easements (Special)
BL2012-209	Authorizes MuniNet Fiber Agency to construct, install, and maintain fiber optic cable (Special)
BL2012-210	Approves ground lease with the State of Tennessee for construction of communications tower (Special)
BL2012-211	Amends §§ 1.01.010—1.01.050 (1.01)
BL2012-212	Amends official zoning map (Special)
BL2012-213	Adds § 2.64.055 (2.64)
Amdt. 1	Amends § 1 of Ord. BL2012-213 (2.64)
BL2012-214	(Withdrawn)
BL2012-215	Adds § 5.04.100 (5.04)
Amdt. 1	Amends § 1 of Ord. BL2012-215 (5.04)
BL2012-216	Amends §§ 5.20.010, 5.20.030, 5.20.040; repeals §§ 5.20.050, 5.20.060 (5.20)
BL2012-217	Names the west police precinct (Special)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2012-217 (Special)
BL2012-218	Adds § 15.44.050.E. (15.44)
Amdt. 1	Amends § 1 of Ord. BL2012-218 (15.44)
BL2012-219	Approves acquisition of property (Special)
BL2012-220	Approves acquisition of property (Special)
BL2012-221	Authorizes acquisition of property rights (Special)

Ordinance Number	Disposition
BL2012-222	Approves acquisition of property (Special)
BL2012-223	Authorizes acquisition and/or exchange of property (Special)
BL2012-224	Approves acquisition of easements (Special)
BL2012-225	Authorizes acquisition and acceptance of easements (Special)
BL2012-226	Authorizes acquisition of permanent and temporary easements (Special)
BL2012-227	Authorizes acquisition of permanent and temporary easements (Special)
BL2012-228	Amends § 8.12.020.C.; adds § 8.12.020.N. (8.12)
Amdt. 1	Amends § 2 of Ord. BL2012-228 (8.12)
Amdt. 2	Amends § 2 of Ord. BL2012-228 (8.12)
BL2012-229	Adds § 17.40.740.C.5. (17.40)
BL2012-230	Amends official zoning map (Special)
BL2012-231	Amends official zoning map (Special)
BL2012-232	Amends official zoning map (Special)
BL2012-233	Amends official zoning map (Special)
BL2012-234	Amends official zoning map (Special)
BL2012-235	Amends official street and alley acceptance and maintenance map (Special)
BL2012-236	Amends official street and alley acceptance and maintenance map (Special)
BL2012-237	Amends §§ 3.32.040, 3.33.040, 3.36.040, 3.37.040, 3.16.020.C., 3.24.010.D.; adds §§ 3.08.110.F., 3.12.050.C., 3.24.010.E., 3.28.060.I., 3.29.060.I. (3.08, 3.12, 3.16, 3.24, 3.28, 3.29, 3.32, 3.33, 3.36, 3.37)
Amdt. 1	Amends §§ 1, 2, 3, 4, 6 and 7 of Ord. BL2012-237 (3.12, 3.16, 3.32, 3.33, 3.36, 3.37)
BL2012-238	Authorizes the acceptance and record of easements (Special)
BL2012-239	Approves acquisition of property (Special)
BL2012-240	Authorizes acquisition of property (Special)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2012-240 (Special)
BL2012-241	(Withdrawn)
BL2012-242	Authorizes acquisition of certain right-of-way easements and property rights (Special)
BL2012-243	Authorizes acquisition of certain right-of-way easements and property rights (Special)
BL2012-244	Amends official zoning map (Special)
BL2012-245	(Withdrawn)
BL2012-246	(Withdrawn)
BL2012-247	Amends official zoning map (Special)
BL2012-248	Amends official zoning map (Special)
BL2012-249	Amends §§ 17.04.060, 17.08.030; adds § 17.16.070.N.; renumbers § 17.16.070.N.—U. as O.—V. (17.04, 17.08, 17.16)
BL2012-250	Adds § 2.44.085 (2.44)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2012-250 (2.44)
BL2012-251	Approves facilities use agreement with Nashville State Community College (Special)
BL2012-252	Abandons and accepts portion of sanitary sewer main and easements (Special)
BL2012-253	Amends official street and alley acceptance and maintenance map (Special)
BL2012-254	Amends official street and alley acceptance and maintenance map (Special)
BL2012-255	Amends official street and alley acceptance and maintenance map (Special)
BL2012-256	Authorizes acquisition of property (Special)
BL2012-257	Adds § 15.64.170.B.g. (15.64)
BL2012-258	Abandons and acquires easements (Special)
BL2012-259	Abandons pump station and easement (Special)
BL2012-260	Authorizes acquisition of easements (Special)
BL2012-261	Amends §§ 1.16.010, 1.16.040, 1.16.070, ch. 2.44, art. II (tit.), 2.44.120—2.44.170, 3.08.010, 13.24.100, 16.04.150; repeals §§ 1.16.030, 1.16.060, 6.40.010—6.40.050, 6.16.010—6.16.090, 6.56.010, 6.64.070—6.64.230, 10.76.010—10.76.200, 11.16.080.B., 11.24.090, 12.04.390, 13.32.050—13.32.070, 13.32.130, 13.36.010—13.36.130 (1.16, 2.44, 3.08, 6.16, 6.40, 6.56, 6.64, 10.76, 11.16, 11.24, 12.04, 13.24, 13.32, 13.36, 16.04)
BL2012-262	Repeals § 13.08.015.E.1.; adds § 13.08.025 (13.08)
Amdt. 1	Deletes and substitutes § 2 of Ord. BL2012-262 (13.08)
BL2012-263	Amends official zoning map (Special)
BL2012-264	Amends § 17.40.120.G.3.b. (17.40)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2012-264 (17.40)
BL2012-265	Names the bridge on Georgia Avenue (Special)
BL2012-266	(Failed)
BL2012-267	Authorizes the construction, installation, operation, and maintenance of underground and structural encroachments (Special)
BL2012-268	Approves acquisition of property (Special)
BL2012-269	Approves acquisition of property (Special)
BL2012-270	Approves acquisition of easement, sewer mains, water mains, and fire hydrants (Special)
BL2012-271	Abandons sewer lines and easements (Special)
BL2012-272	Amends official street and alley acceptance and maintenance map (Special)

Ordinance Number	Disposition
BL2012-273	Amends official zoning map (Special)
BL2012-274	Amends official zoning map (Special)
BL2012-275	Amends official zoning map (Special)
BL2012-276	Amends official zoning map (Special)
BL2012-277	Amends official zoning map (Special)
BL2012-278	(Withdrawn)
BL2012-279	Amends official zoning map (Special)
BL2012-280	Amends § 17.40.400.A.5. (17.40)
BL2012-281	Amends §§ 2.100.030, 2.100.050, 2.100.055, 6.72.010, 12.54.010, 1.24.030 (1.24, 2.100, 6.72, 12.54)
Amdt. 1	Adds § 5 and renumbers existing sections accordingly of Ord. BL2012-281 (2.100)
BL2012-282	Amends § 4.20.100 (4.20)
Amdt. 1	Deletes and substitutes § 1 of Ord. BL2012-282 (4.20)
BL2012-283	Amends §§ 6.64.010—6.64.190 (6.64)
Amdt. 1	Amends § 1 of Ord. BL2012-283 (6.64)
BL2012-284	(Withdrawn)
BL2012-285	Approves a lease agreement with the State of Tennessee, Department of Transportation (Special)
BL2012-286	Approves a lease agreement with the United States of America, Department of the Army (Special)
BL2012-287	Approves a lease agreement with the State of Tennessee (Special)
BL2012-288	Authorizes the construction and maintenance of wetland restoration projects (Special)
BL2012-289	Amends official street and alley acceptance and maintenance map (Special)
BL2012-290	Amends official street and alley acceptance and maintenance map (Special)
BL2012-291	(Disapproved)
BL2012-292	(Withdrawn)
BL2012-293	(Withdrawn)
BL2012-294	(Failed)
BL2012-295	(Withdrawn)
BL2012-296	Designates honorary street name (Special)
BL2012-297	Accepts payments in lieu of ad valorem taxes (Special)
BL2012-298	Approves agreement for a national program called the Public Defender Corps and accepts funding (Special)
BL2012-299	Abandons easements (Special)
BL2012-300	Abandons easements (Special)
BL2012-301	(Failed)
BL2012-302	Amends official zoning map (Special)
BL2012-303	Amends official zoning map (Special)
Amdt. 1	Deletes and replaces § 3 of Ord. BL2012-303 (Special)
BL2012-304	(Withdrawn)
BL2012-305	Amends official zoning map (Special)
BL2012-306	Amends official zoning map (Special)
BL2012-307	Amends official zoning map (Special)
BL2012-308	Amends official zoning map (Special)
BL2012-309	Amends official zoning map (Special)
Amdt. 1	Renumbers existing § 7 as § 8 and adds new § 7 of Ord. BL2012-309 (Special)
BL2012-310	Amends official zoning map (Special)
BL2012-311	Amends official zoning map (Special)
BL2012-312	Amends §§ 17.08.030, 17.16.070.D.4. (17.08, 17.16)
BL2012-313	Amends § 17.40.010.H., I.1. (17.40)
BL2012-314	Amends the employee benefit system to provide a retirement incentive program (Special)
BL2012-315	Amends § 4.46.060 (4.46)
BL2012-316	Authorizes acquisition of easements (Special)
BL2012-317	Abandons and accepts sewer mains (Special)
BL2012-318	Approves lease agreement with the metropolitan development and housing agency (Special)
BL2012-319	Approves lease agreement with the metropolitan development and housing agency (Special)
BL2012-320	(Failed)
BL2012-321	Approves agreement with CSX Transportation, Inc. (Special)
BL2012-322	Authorizes permanent easement (Special)
BL2012-323	Amends official street and alley acceptance and maintenance map (Special)
BL2012-324	Designates honorary street name (Special)
BL2012-325	Grants a franchise to Nashville Data Link, Inc. (Special)
BL2012-326	Amends official zoning map (Special)
BL2012-327	Amends official zoning map (Special)
BL2012-328	Amends official zoning map (Special)
BL2012-329	Amends official zoning map (Special)
BL2012-330	Amends official zoning map (Special)
BL2012-331	Amends official zoning map (Special)
BL2012-332	Amends § 6.80.550 (6.80)
BL2012-333	Adds § 15.12.085; amends § 15.16.200.A.; adds § 15.16.200.C.; repeals §§ 15.32.120—15.32.140; amends §§ 15.44.040.B., 15.48.210, 15.48.220.B., 15.48.230, 15.48.260, 15.48.270; repeals § 15.48.280 (15.12, 15.16, 15.32, 15.44, 15.48)
Amdt. 1	Amends § 2 of Ord. BL2012-333 (15.16)
BL2012-334	Amends § 13.08.040.B.6. (13.08)
Amdt. 1	Deletes and replaces § 1 and adds new § 2 of Ord. BL2012-334 (13.08)
BL2012-335	Approves agreement granting Vanderbilt University's LifeFlight and Police Department access to the 800-MHZ system (Special)

Ordinance Number	Disposition
BL2012-336	Designates honorary street name (Special)
BL2012-337	(Withdrawn)
BL2013-338	Amends § 4.12.060 (4.12)
Amdt. 1	Amends § 1 of Ord. BL2013-338 (4.12)
BL2013-339	Accepts payments in lieu of ad valorem taxes (Special)
BL2013-340	Accepts payments in lieu of ad valorem taxes (Special)
BL2013-341	(Withdrawn)
BL2013-342	Approves license agreement (Special)
BL2013-343	Authorizes the installation, construction, and maintenance of underground and aerial encroachments (Special)
Amdt. 1	Adds § 9 and renumbers existing sections accordingly of Ord. BL2013-343 (Special)
BL2013-344	Amends official street and alley acceptance and maintenance map (Special)
BL2013-345	Amends official street and alley acceptance and maintenance map (Special)
BL2013-346	Amends official street and alley acceptance and maintenance map (Special)
BL2013-347	Amends official street and alley acceptance and maintenance map (Special)
BL2013-348	Amends official zoning map (Special)
BL2013-349	(Withdrawn)
BL2013-350	Amends official zoning map (Special)
BL2013-351	Amends official zoning map (Special)
Amdt. 1	Substitutes plan referenced in § 1 of Ord. BL2013-351 with new plan (Special)
BL2013-352	Amends official zoning map (Special)
BL2013-353	(Withdrawn)
BL2013-354	(Withdrawn)
BL2013-355	Amends official zoning map (Special)
BL2013-356	Designates honorary street name (Special)
BL2013-357	Abandons water, sewer, and stormwater mains and easements (Special)
BL2013-358	Approves agreement with Americans for the Arts (Special)
BL2013-359	Approves various agreements related to the conveyance of fee interest (Special)
BL2013-360	Provides for a study of the compensation and benefits of elected officials (Special)
Amdt. 1	Amends § 1 of Ord. BL2013-360 (Special)
BL2013-361	Authorizes the installation, construction, and maintenance of underground and aerial encroachments (Special)
BL2013-362	Declares surplus and approves the disposition of certain parcels of real property (Special)
BL2013-363	Abandons easements (Special)
BL2013-364	Accepts easements (Special)
BL2013-365	Accepts easements (Special)
BL2013-366	Accepts easements (Special)
BL2013-367	Accepts easements (Special)
BL2013-368	Amends official street and alley acceptance and maintenance map (Special)
BL2013-369	Amends §§ 1.01.010—1.01.050 (1.01)
BL2013-370	Amends official zoning map (Special)
BL2013-371	Amends official zoning map (Special)
BL2013-372	Amends official zoning map (Special)
BL2013-373	Amends official zoning map (Special)
BL2013-374	Amends official zoning map (Special)
BL2013-375	Amends official zoning map (Special)
BL2013-376	Amends §§ 17.32.140, 17.37.010 (17.32, 17.37)
BL2013-377	Approves Amendment No. 9 to the Capitol Mall Redevelopment Project Plan, Amendment No. 6 to the Rutledge Hill Redevelopment Plan, Amendment No. 4 to the Phillips-Jackson Street Redevelopment Plan, and Amendment No. 4 to the Arts Center Redevelopment Plan (Special)
Amdt. 1	Amends language of Ord. BL2013-377 (Special)
BL2013-378	Amends official zoning map (Special)
BL2013-379	Amends § 8.12.020.C.; adds § 8.12.020.O. (8.12)
Amdt. 1	Amends § 3 of Ord. BL2013-379 (8.12)
BL2013-380	Amends § 13.20.020.B. (13.20)
BL2013-381	Adds § 16.60.110 (16.60)
Amdt. 1	Amends § 1 of Ord. BL2013-381 (16.60)
BL2013-382	Relinquishes interest in a building and parcel of property (Special)
BL2013-383	Adopts the 2013—2018 Consolidated Plan for Housing and Community Development (Special)
Amdt. 1	Renumbers the existing § 9 as § 10 and adds new § 9 of Ord. BL2013-383 (Special)
BL2013-384	Adopted the 2013 Analysis of Impediments to Fair Housing Choice (Special)
BL2013-385	Abandons sewer main and easements (Special)
BL2013-386	Amends official street and alley acceptance and maintenance map (Special)
BL2013-387	Amends official street and alley acceptance and maintenance map (Special)
BL2013-388	Repeals § 7.16.120 (7.16)
BL2013-389	Amends § 13.24.130.A. (13.24)
Amdt. 1	Amends § 1 of Ord. BL2013-389 (13.24)
BL2013-390	Amends § 13.40.040.G. (13.40)
BL2013-391	Abandons water main and easements (Special)
BL2013-392	(Withdrawn)
BL2013-393	Amends official zoning map (Special)
BL2013-394	Amends § 17.08.030 (17.08)
BL2013-395	Approves settlement agreement and payment (Special)

Ordinance Number	Disposition
BL2013-396	Amends §§ 6.08.020, 6.08.030; repeals § 6.08.050; amends §§ 6.08.060, 6.08.070, 6.08.090; repeals §§ 6.08.100, 6.08.110, 6.08.130.E., 6.08.140 (6.08)
BL2013-397	Approves amendment 1 to contract with CCBCC Operations, LLC (Special)
BL2013-398	Approves internship affiliation agreement with Argosy Education Group, Inc. d/b/a Argosy University (Special)
BL2013-399	Authorizes the director of public property to accept and record easement (Special)
BL2013-400	Authorizes a permanent easement (Special)
BL2013-401	Abandons easement (Special)
BL2013-402	(Withdrawn)
BL2013-403	Adds § 17.12.100.C. (17.28)
BL2013-404	Designates honorary street name (Special)
BL2013-405	Approves sublease agreement with STEM Preparatory Academy (Special)
BL2013-406	Approves lease agreement with the metropolitan development and housing agency (Special)
BL2013-407	Accepts donation of real property (Special)
BL2013-408	Amends official street and alley acceptance and maintenance map (Special)
BL2013-409	Abandons sewer main (Special)
BL2013-410	Amends official zoning map (Special)
BL2013-411	Amends official zoning map (Special)
BL2013-412	Amends official zoning map (Special)
BL2013-413	Amends official zoning map (Special)
BL2013-414	Amends official zoning map (Special)
BL2013-415	Amends official zoning map (Special)
BL2013-416	Amends official zoning map (Special)
BL2013-417	Amends official zoning map (Special)
BL2013-418	Amends §§ 17.08.030, 17.16.070.E., F., J., U., V.; repeals § 17.16.090.C. and renumbers 17.16.090.D.—G. as C.—F.; adds § 17.32.050.G.6.; amends §§ 17.32.110.C., 17.32.120.C., 17.32.130.D., 17.32.150 (17.08, 17.16, 17.32)
BL2013-419	Amends § 17.40.670 (17.40)
BL2013-420	Adds §§ 2.212.010—2.212.050 (2.212)
BL2013-421	Amends § 10.56.250.A., E., F.; repeals § 10.56.250.G. (10.56)
Amdt. 1	Deletes and substitutes § 3 of Ord. BL2013-421 (10.56)
BL2013-422	(Withdrawn)
BL2013-423	(Withdrawn)
BL2013-424	Approves lease agreement (Special)
BL2013-425	Approves license agreement (Special)
Amdt. 1	Amends § 1 of Ord. BL2013-425 (Special)
BL2013-426	Abandons sewer main and easements (Special)
BL2013-427	Abandons public utility and drainage easement (Special)
BL2013-428	Abandons sewer main and easements (Special)
BL2013-429	Abandons sewer main and easements (Special)
BL2013-430	Amends official street and alley acceptance and maintenance map (Special)
BL2013-431	Budget ordinance for fiscal year 2014 (Special)
BL2013-432	Establishes tax levy in the General Services District for 2013—2014 (Special)
BL2013-433	Amends § 10.20.220.G. (10.20)
BL2013-434	Approves affiliation agreement with Vanderbilt University (Special)
BL2013-435	Approves a lease agreement with Liberty Collegiate Academy (Special)
BL2013-436	Approves a lease agreement with Nashville Preparatory Academy (Special)
BL2013-437	Amends official street and alley acceptance and maintenance map (Special)
BL2013-438	Amends official street and alley acceptance and maintenance map (Special)
BL2013-439	Amends official street and alley acceptance and maintenance map (Special)
BL2013-440	Approves disposition of surplus property (Special)
Amdt. 1	Amends § 4 of Ord. BL2013-440 (Special)
BL2013-441	Abandons easement rights (Special)
BL2013-442	Accepts permanent easements (Special)
BL2013-443	Accepts permanent easements (Special)
BL2013-444	Accepts permanent easements (Special)
BL2013-445	Abandons sewer main and easements (Special)
BL2013-446	Amends §§ 1.01.010—1.01.050 (1.01)
BL2013-447	(Withdrawn)
BL2013-448	Amends official zoning map (Special)
BL2013-449	Amends official zoning map (Special)
BL2013-450	Amends official zoning map (Special)
BL2013-451	(Withdrawn)
BL2013-452	Amends §§ 8.04.040, 8.04.070, 8.04.130.A.; adds §§ 8.04.130.E., 8.04.140.D. (8.04)
BL2013-453	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2013-453 (Special)
BL2013-454	Approves enrollment in the CARFAX Investigative Data Sharing Program (Special)
BL2013-455	Authorizes participation agreement with Meharry Medical College (Special)
BL2013-456	Authorizes acquisition of easements (Special)
BL2013-457	Authorizes acquisition of easements (Special)
BL2013-458	Authorizes acquisition of easements (Special)

Ordinance Number	Disposition
BL2013-459	Authorizes acquisition of easements (Special)
BL2013-460	Authorizes acquisition of easements (Special)
BL2013-461	Authorizes acquisition of easements (Special)
BL2013-462	Authorizes acquisition of easements (Special)
BL2013-463	Authorizes acquisition of easements (Special)
BL2013-464	Authorizes acquisition of easements (Special)
BL2013-465	Authorizes acquisition of easements (Special)
BL2013-466	Authorizes acquisition of easements (Special)
BL2013-467	Adopts capital improvements budget and program 2013—2014 through 2018—2019 (Special)
Amdts. 1—30	Amends projects to be funded of Ord. BL2013-467 (Special)
BL2013-468	Amends official zoning map (Special)
BL2013-469	Amends official zoning map (Special)
BL2013-470	Amends official zoning map (Special)
BL2013-471	Amends official zoning map (Special)
BL2013-472	Amends official zoning map (Special)
BL2013-473	Amends official zoning map (Special)
BL2013-474	Amends official zoning map (Special)
BL2013-475	Amends official zoning map (Special)
Amdt. 1	Amends site plan incorporated into § 1 of Ord. BL2013-475 (Special)
BL2013-476	Amends §§ 6.81.005, 6.81.010, 6.81.040, 6.81.170, 6.81.180.C.; adds § 6.82.200.D. (6.81)
BL2013-477	Creates positions of fire services deputy director and fire commander (Special)
BL2013-478	Creates position of information systems deputy director (Special)
BL2013-479	Creates various positions to staff the police department crime laboratory (Special)
BL2013-480	Designates honorary street name (Special)
BL2013-481	Amends official street and alley acceptance and maintenance map (Special)
BL2013-482	Authorizes acquisition of easements (Special)
BL2013-483	Authorizes acquisition of easements (Special)
BL2013-484	Authorizes acquisition of easements (Special)
BL2013-485	Authorizes acquisition of easements (Special)
BL2013-486	(Withdrawn)
BL2013-487	Adds §§ 2.149.010—2.149.040 (2.149)
BL2013-488	Approves a lease agreement with Grace's Plaza, Ltd. (Special)
BL2013-489	Amends official zoning map (Special)
BL2013-490	Amends official zoning map (Special)
BL2013-491	Amends official zoning map (Special)
BL2013-492	Amends official zoning map (Special)
BL2013-493	Amends official zoning map (Special)
BL2013-494	Amends official zoning map (Special)
BL2013-495	Amends official zoning map (Special)
BL2013-496	Amends official zoning map (Special)
BL2013-497	Amends official zoning map (Special)
BL2013-498	Adds §§ 2.224.010—2.224.050 (2.224)
BL2013-499	Amends § 2.160.020.A. (2.160)
BL2013-500	Amends § 7.20.010 (7.20)
BL2013-501	Names fire station (Special)
BL2013-502	Relinquishes interest in a building and parcel of property (Special)
BL2013-503	Approves agreement with Global Mall Partnership (Special)
BL2013-504	Authorizes participation agreement with Battelle Memorial Institute (Special)
BL2013-505	Authorizes acquisition of easements (Special)
BL2013-506	Abandons easements (Special)
BL2013-507	Abandons and accepts public sewer, water mains and easements (Special)
BL2013-508	Amends § 2.222.040.C.1.(b)i. (2.222)
BL2013-509	Declares surplus and approves the disposition of certain parcels of real property (Special)
BL2013-510	Accepts easements (Special)
BL2013-511	Abandons stormwater pipe and easements (Special)
BL2013-512	Accepts easements (Special)
BL2013-513	Amends official zoning map (Special)
BL2013-514	Amends official zoning map (Special)
BL2013-515	Amends official zoning map (Special)
BL2013-516	Amends §§ 17.40.105, 17.40.106.A., B., G.—I. (17.40)
Amdt. 1	Amends §§ 3 and 6 of Ord. BL2013-516 (17.40)
BL2013-517	Adds §§ 2.211.010—2.211.030 (2.211)
BL2013-518	Approves ground lease agreement (Special)
BL2013-519	Approves construction agreement (Special)
BL2013-520	Accepts easements (Special)
BL2013-521	Accepts easements (Special)
BL2013-522	Accepts easements (Special)
BL2013-523	(Withdrawn)
BL2013-524	Adopts property identification maps (Special)
BL2013-525	Approves agreement for the construction and acceptance of roadway bridge (Special)
BL2013-526	Amends § 3.24.020.D. (3.24)

Ordinance Number	Disposition
Amdt. 1	Renumbers the existing § 2 as § 3 and adds new § 2 of Ord. BL2013-526 (3.24)
BL2013-527	Approves contract with Concentra Health Services, Inc. (Special)
Amdt. 1	Renumbers the existing § 3 as § 4 and adds new § 3 of Ord. BL2013-527 (Special)
Amdt. 2	Repeals Amendment No. 1 of Ord. BL2013-527 (Special)
BL2013-528	Approves donation of property (Special)
BL2013-529	Amends official street and alley acceptance and maintenance map (Special)
BL2013-530	Amends official street and alley acceptance and maintenance map (Special)
BL2013-531	Accepts easements (Special)
BL2013-532	Accepts easements (Special)
BL2013-533	Accepts easements (Special)
BL2013-534	Abandons and accepts sewer main and sewer manholes (Special)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2013-534 (Special)
BL2013-535	Abandons and accepts sewer main, easements and water main (Special)
BL2013-536	Abandons and accepts sewer main and easement (Special)
BL2013-537	Abandons sewer main and easement (Special)
BL2013-538	Amends official zoning map (Special)
BL2013-539	Amends official zoning map (Special)
BL2013-540	Amends official zoning map (Special)
BL2013-541	Amends official zoning map (Special)
BL2013-542	Amends official zoning map (Special)
BL2013-543	Amends § 13.24.390 (13.24)
BL2013-544	Amends § 3.16.020.C.3.(vii) (3.16)
BL2013-545	Establishes program for the purpose of providing assistance to low-income elderly residents (Special)
BL2013-546	Approves lease agreement (Special)
BL2013-547	Abandons and accepts sewer mains and easements (Special)
BL2013-548	Abandons and accepts sewer and water mains and easements (Special)
BL2013-549	Accepts easements (Special)
BL2013-550	Amends § 3.08.010 (3.08)
BL2013-551	Amends §§ 12.54.200.A.9., 12.54.310 (12.54)
BL2013-552	Adds § 16.24.330.K.9. (16.24)
Amdt. 1	Repeals and replaces § 1; renumbers the existing § 2 as § 3 and adds new § 2 of Ord. BL2013-552 (16.24)
BL2013-553	Declares surplus and approves the disposition of a portion of a parcel of real property (Special)
BL2013-554	Declares surplus and approves the disposition of certain parcel of real property (Special)
BL2013-555	Approves lease agreement (Special)
BL2013-556	Authorizes exchange of vacant property (Special)
BL2013-557	Approves a Memorandum of Understanding between UCLA School of Law, Gideon's Promise, the metropolitan public defender's office, and additional partner offices (Special)
BL2013-558	Approves donation agreement and accepts donation of artwork (Special)
BL2013-559	Designates honorary street name (Special)
BL2013-560	Amends official zoning map (Special)
BL2013-561	Amends official zoning map (Special)
BL2013-562	Amends official zoning map (Special)
BL2013-563	Amends official zoning map (Special)
BL2013-564	Amends official zoning map (Special)
BL2013-565	Amends official zoning map (Special)
BL2013-566	Amends official zoning map (Special)
BL2013-567	Amends Table 17.12.020.D., Table 17.24.230 (17.12, 17.24)
BL2013-568	Amends § 17.32.050.H.2. (17.32)
Amdt. 1	Repeals and replaces § 1 of Ord. BL2013-568 (17.32)
BL2013-569	(Withdrawn)
BL2013-570	Amends §§ 6.20.010—6.20.129, 6.20.250—6.20.280 (6.20)
Amdt. 1	Amend §§ 1, 2; renumbers existing § 3 as § 4 and adds new § 3 of Ord. BL2013-570 (6.20)
BL2013-571	Adds §§ 6.80.165, 6.80.340 (6.80)
Amdt. 1	Repeals and replaces § 2 of Ord. BL2013-571 (6.80)
BL2013-572	Approves lease agreement (Special)
Amdt. 1	Amends § 1 of Ord. BL2013-572 (Special)
BL2013-573	Authorizes the director of public property, or his designee, to accept, execute and record a quitclaim deed (Special)
BL2013-574	Accepts easements (Special)
BL2013-575	Abandons and accepts sewer mains and easements (Special)
BL2013-576	Amends § 5.04.075 (5.04)
BL2013-577	Adds § 2.24.240.J. (2.24)
BL2013-578	Amends § 5.04.070.B.6. (5.04)
Amdt. 1	Amends § 1 of Ord. BL2013-578 (5.04)
BL2013-579	Amends §§ 5.32.100, 5.32.120.B.; adds § 5.32.110.C.; repeals § 5.32.140 (5.32)
BL2013-580	(Withdrawn)
BL2013-581	Grants a permanent easement (Special)
BL2013-582	Authorizes participation agreement (Special)

Ordinance Number	Disposition
BL2013-583	Authorizes the installation, construction, and maintenance of underground and aerial encroachments (Special)
BL2013-584	Amends official street and alley acceptance and maintenance map (Special)
BL2013-585	Amends official zoning map (Special)
BL2013-586	Amends official zoning map (Special)
BL2013-587	Amends official zoning map (Special)
BL2013-588	Amends official zoning map (Special)
BL2013-589	Amends official zoning map (Special)
BL2013-590	Amends § 17.32.050.H.2. (17.32)
BL2013-591	Amends §§ 10.20.100.A., 10.20.360.A., B.; repeals §§ 10.20.360.C., 10.20.500 (10.20)
Amdt. 1	Amends § 2 of Ord. BL2013-591 (10.20)
BL2013-592	Amends § 7.08.140.O. (7.08)
BL2013-593	Approves the issuance and sale of bonds (Special)
BL2013-594	Approves the acquisition and disposition of real property (Special)
BL2013-595	Approves Amendment No. 5 to the Phillips-Jackson Street Redevelopment Plan (Special)
BL2013-596	Authorizes the director of public property, or his designee, to accept, execute and record a deed (Special)
BL2013-597	Authorizes the acquisition of certain right-of-way, slope, and temporary construction easements (Special)
BL2013-598	Approves and accepts contribution (Special)
BL2013-599	Amends official street and alley acceptance and maintenance map (Special)
Amdt. 1	Repeals and replaces § 2 of Ord. BL2013-599 (Special)
BL2013-600	Amends official street and alley acceptance and maintenance map and the geographic information systems street and alley centerline layer (Special)
BL2013-601	Amends §§ 1.01.010—1.01.050 (1.01)
BL2013-602	Amends official zoning map (Special)
BL2013-603	(Withdrawn)
BL2013-604	Adds § 11.12.070.C.4. (11.12)
BL2013-605	Amends § 6.74.025.D.1.b., c. (6.74)
BL2013-606	Authorizes the arts commission to accept donations or sponsorships (Special)
BL2013-607	Amends official street and alley acceptance and maintenance map (Special)
BL2013-608	Authorizes the acquisition of certain right-of-way, drainage, and temporary construction easements (Special)
BL2013-609	Authorizes the acquisition of certain right-of-way, drainage, and temporary construction easements (Special)
BL2013-610	Accepts easements (Special)
BL2013-611	Accepts easements (Special)
BL2013-612	Abandons and accepts sewer main and easement (Special)
BL2013-613	Abandons easement (Special)
BL2013-614	Abandons sewer easement (Special)
BL2013-615	Abandons and accepts sewer main and easement (Special)
BL2013-616	Amends official zoning map (Special)
BL2013-617	Amends official zoning map (Special)
BL2013-618	Amends official zoning map (Special)
BL2013-619	Amends official zoning map (Special)
Amdt. 1	Renumbers § 3 as § 4 and adds new § 3 of Ord. BL2013-619 (Special)
BL2013-620	Amends official zoning map (Special)
Amdt. 1	Renumbers § 8 as § 9 and adds new § 8 of Ord. BL2013-620 (Special)
BL2013-621	Amends official zoning map (Special)
BL2013-622	Amends official zoning map (Special)
BL2013-623	Amends official zoning map (Special)
BL2013-624	Amends official zoning map (Special)
BL2013-625	Amends official zoning map (Special)
BL2013-626	Amends official zoning map (Special)
BL2013-627	Amends official zoning map (Special)
BL2013-628	Amends official zoning map (Special)
BL2013-629	Adds § 8.12.020.G.3.; repeals § 8.12.020.M.; repeals § 17.16.250.B.1. and renumbers B.2.—5. as B.1.—4. (8.12, 17.16)
BL2013-630	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2013-630 (Special)
BL2013-631	(Withdrawn)
BL2013-632	Accepts donation of three horses (Special)
BL2013-633	Amends § 7.08.140.D. (7.08)
BL2014-634	Amends official zoning map (Special)
BL2014-635	Amends official zoning map (Special)
BL2014-636	Amends official zoning map (Special)
BL2014-637	Amends official zoning map (Special)
BL2014-638	Amends official zoning map (Special)
BL2014-639	Amends official zoning map (Special)
BL2014-640	Amends official zoning map (Special)
BL2014-641	Amends official zoning map (Special)
BL2014-642	Amends official zoning map (Special)
BL2014-643	Amends official zoning map (Special)
BL2014-644	Amends official zoning map (Special)
BL2014-645	Amends official zoning map (Special)
BL2014-646	Amends official zoning map (Special)
BL2014-647	Amends official zoning map (Special)
BL2014-648	Amends official zoning map (Special)
BL2014-649	Amends official zoning map (Special)
BL2014-650	Amends official zoning map (Special)
BL2014-651	Amends §§ 17.04.060, 17.08.030; adds § 17.16.120.D. (17.04, 17.08, 17.16)
Amdt. 1	Amends § 3 of Ord. BL2014-651 (17.16)
BL2014-652	(Withdrawn)

Ordinance Number	Disposition
BL2014-653	(Withdrawn)
BL2014-654	Amends § 7.08.140.O. (7.08)
BL2014-655	Authorizes negotiation and acceptance of permanent easements (Special)
BL2014-656	Abandons easement rights (Special)
BL2014-657	Abandons utility easement (Special)
BL2014-658	Authorizes negotiation and acceptance of temporary easements (Special)
BL2014-659	Amends official zoning map (Special)
BL2014-660	Amends § 2.140.030.A., B. (2.140)
BL2014-661	Approves a memorandum of understanding (MOU) (Special)
Amdt. 1	Replaces the MOU incorporated into § 1 of Ord. BL2014-661 with replacement MOU (Special)
BL2014-662	Accepts donation (Special)
BL2014-663	(Withdrawn)
BL2014-664	Abandons easement (Special)
BL2014-665	(Withdrawn)
BL2014-666	(Withdrawn)
BL2014-667	Repeals § 2.78.010.C. (2.78)
BL2014-668	Approves a memorandum of understanding (MOU) (Special)
BL2014-669	Authorizing the Industrial Development Board of the Metropolitan Government of Nashville and Davidson County to negotiate and accept payments in lieu of ad valorem taxes with respect to affiliates of HCA Holdings, Inc., including Parallon Business Solutions, LLC, HealthTrust Purchasing Group, LP, and Sarah Cannon Holdings, LLC (Special)
BL2014-670	Authorizing the acquisition of certain right-of-way, permanent easements, and temporary construction easements and property rights by negotiation or condemnation (Special)
BL2014-671	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-672	Amends official street and alley acceptance and maintenance map (Special)
BL2014-673	Amends official zoning map (Special)
BL2014-674	Amends official zoning map (Special)
BL2014-675	Amends official zoning map (Special)
BL2014-676	Amends official zoning map (Special)
BL2014-677	Amends official zoning map (Special)
BL2014-678	Amends official zoning map (Special)
BL2014-679	Amends official zoning map (Special)
BL2014-680	Amends official zoning map (Special)
BL2014-681	Amends official zoning map (Special)
BL2014-682	Amends official zoning map (Special)
BL2014-683	(Deferred indefinitely)
BL2014-684	Amends § 17.04.060; repeals § 17.16.030.F.1.a.; renumbers § 17.16.030.F.1.b., c. as 17.16.030.F.1.a., b. (17.04, 17.16)
BL2014-685	Amends § 17.40.730.A. (17.40)
BL2014-686	Approves transfer of certain properties (Special)
BL2014-687	Designates public property within specified areas of downtown Nashville as a temporary "Special Event Zone" (Special)
BL2014-688	Approves agreements for the lease and disposition of real property relating to the Bordeaux Long Term Care and J.B. Knowles Home for the Aged facilities (Special)
BL2014-689	Abandons easement rights (Special)
BL2014-690	Abandons easement rights (Special)
BL2014-691	Abandons easement rights (Special)
BL2014-692	Abandons water mains, sewer mains and easement rights (Special)
BL2014-693	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-694	Amends official zoning map (Special)
BL2014-695	Names bridge (Special)
BL2014-696	Adds § 5.04.110 (5.04)
Amdt. 1	Deletes and replaces § 1 of Ord. BL2014-696 (5.04)
BL2014-697	Adds § 7.08.090.G. (7.08)
Amdt. 1	Deletes and replaces § 1 of Ord. BL2014-697 (7.08)
BL2014-698	(Failed)
BL2014-699	Approves Amendment No. 5 to the Arts Center Redevelopment Plan, Amendment No. 10 to the Capitol Mall Redevelopment Project Plan, Amendment No. 1 to the Jefferson Street Redevelopment Plan, and Amendment No. 7 to the Rutledge Hill Redevelopment Plan (Special)
BL2014-700	Approves lease agreement (Special)
BL2014-701	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-702	Amends official zoning map (Special)
BL2014-703	Amends official zoning map (Special)
BL2014-704	Amends official zoning map (Special)
BL2014-705	Amends official zoning map (Special)
BL2014-706	Amends official zoning map (Special)
BL2014-707	Amends official zoning map (Special)
BL2014-708	Amends official zoning map (Special)
BL2014-709	Amends official zoning map (Special)
BL2014-710	Amends official zoning map (Special)
BL2014-711	Amends official zoning map (Special)
BL2014-712	Amends official zoning map (Special)
BL2014-713	Amends official zoning map (Special)
BL2014-714	Adds § 17.20.135 (17.20)

Ordinance Number	Disposition
BL2014-715	Amends § 17.40.720; adds § 17.40.730.D.; amends § 17.40.740.C. (17.40)
BL2014-716	Authorizes the director of public property, or his designee, to accept and record the attached quitclaim deed (Special)
BL2014-717	Approves an agreement by and between the Metropolitan Government of Nashville and Davidson County, by and through the Metropolitan Nashville Arts Commission, and the Country Music Foundation, Inc. to use the Country Music Hall of Fame and Museum for an event during the Americans for the Arts 2014 Annual Convention (Special)
BL2014-718	Approves an agreement by and between the Metropolitan Government of Nashville and Davidson County, by and through the Metropolitan Nashville Arts Commission, and the Frist Center for the Visual Arts to use the Frist Center for an event during the Americans for the Arts 2014 Annual Convention (Special)
BL2014-719	Authorizes negotiation and acceptance of permanent easements (Special)
BL2014-720	Abandons water mains, sewer mains and easement rights (Special)
BL2014-721	Abandons easement rights (Special)
BL2014-722	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-723	Abandons sewer main easement (Special)
BL2014-724	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-725	Amends § 17.12.030.C.3. (17.12)
BL2014-726	Grants the purchasing agent and the metropolitan employee benefit board the authority to extend the current medical plan contracts for up to an additional two years (Special)
BL2014-727	Amends § 2.140.030.B. (2.140)
BL2014-728	Amends § 5.12.140.B. (5.12)
BL2014-729	Approves lease agreement (Special)
BL2014-730	Authorizes the director of public property to accept and record easement (Special)
BL2014-731	Amends official zoning map (Special)
BL2014-732	Amends official zoning map (Special)
BL2014-733	Amends official zoning map (Special)
BL2014-734	Amends official zoning map (Special)
BL2014-735	Amends official zoning map (Special)
BL2014-736	Amends official zoning map (Special)
BL2014-737	Amends official zoning map (Special)
BL2014-738	Amends official zoning map (Special)
BL2014-739	Amends §§ 17.04.060, 17.08.030 (17.04, 17.08)
BL2014-740	Amends §§ 17.04.060, 17.08.030 (17.04, 17.08)
BL2014-741	(Withdrawn)
BL2014-742	Adds § 7.08.090.H. (7.08)
BL2014-743	Amends § 7.08.100 (7.08)
BL2014-744	Approves the form of a license agreement to use metropolitan government property for Network Huts by Google Fiber Company (Special)
BL2014-745	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-746	Approves disposition of surplus property (Special)
BL2014-747	Amends §§ 17.04.060, 17.08.030; adds § 17.16.080.D. (17.04, 17.08, 17.16)
BL2014-748	Approves an agreement by and between the Metropolitan Government of Nashville and Davidson County, by and through the Metropolitan Nashville Arts Commission, and the WESTAF for archiving public art (Special)
BL2014-749	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-750	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-751	Approves disposition of surplus property (Special)
BL2014-752	Approves disposition of surplus property (Special)
BL2014-753	Abandons water and sewer main (Special)
BL2014-754	Abandons sewer main (Special)
BL2014-755	Abandons sewer main (Special)
BL2014-756	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-757	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-758	Designates honorary street name (Special)
BL2014-759	Amends official zoning map (Special)
BL2014-760	Amends official zoning map (Special)
BL2014-761	Amends official zoning map (Special)
BL2014-762	Amends official zoning map (Special)
BL2014-763	Amends official zoning map (Special)
BL2014-764	Amends official zoning map (Special)
BL2014-765	Amends official zoning map (Special)
BL2014-766	Amends official zoning map (Special)
BL2014-767	Amends official zoning map (Special)
BL2014-768	Amends official zoning map (Special)
BL2014-769	Amends §§ 17.04.060, 17.16.030.F. (17.04, 17.16)

Ordinance Number	Disposition
BL2014-770	Amends §§ 17.04.060, Table 17.12.020A, 17.16.030.D. (17.04, 17.12, 17.16)
Amdt. 1	Renumbers § 4 as § 5 and adds new § 4 of Ord. BL2014-770 (Special)
BL2014-771	Adds §§ 17.36.450—17.36.500; amends § 17.40.740.C.3. (17.36, 17.40)
BL2014-772	Amends §§ 17.16.110.A., 17.16.210.A. (17.16)
BL2014-773	Amends official zoning map (Special)
BL2014-774	Budget ordinance for fiscal year 2015 (Special)
BL2014-775	Establishes tax levy in the General Services District for 2014—2015 (Special)
BL2014-776	(Withdrawn)
BL2014-777	Adds §§ 2.144.020—2.144.040 (2.144)
BL2014-778	Amends §§ 10.60.020, 10.60.080 (10.60)
BL2014-779	Adds §§ 3.14.010—3.14.070 (3.14)
BL2014-780	Naming of bridge (Special)
BL2014-781	Amends § 7.08.010 (7.08)
BL2014-782	Approves an agreement between Vanderbilt University, and the Metropolitan Government of Nashville and Davidson County (Special)
BL2014-783	Authorizes the acquisition of property (Special)
BL2014-784	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-785	Authorizes the acquisition of property (Special)
Amdt. 1	Renumbers § 4 as § 5 and adds new § 4 of Ord. BL2014-785 (Special)
BL2014-786	Abandons easement rights (Special)
BL2014-787	Amends official zoning map (Special)
BL2014-788	Adopts capital improvements budget and program 2014—2015 through 2019—2020 (Special)
Amdts. 1—13	Amends projects to be funded of Ord. BL2014-788 (Special)
BL2014-789	Approves partnership agreement (Special)
BL2014-790	Accepts donation of eight laptops (Special)
BL2014-791	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-792	Abandons sewer main and easement (Special)
BL2014-793	Abandons sewer main and easement (Special)
BL2014-794	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-795	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-796	Grants a permanent easement (Special)
BL2014-797	Abandons easement rights (Special)
BL2014-798	Abandons easement rights (Special)
BL2014-799	(Withdrawn)
BL2014-800	Amends official zoning map (Special)
BL2014-801	Amends official zoning map (Special)
BL2014-802	Amends official zoning map (Special)
Amdt. 1	Deletes and substitutes § 4 of Ord. BL2014-802 (Special)
BL2014-803	Amends official zoning map (Special)
BL2014-804	Amends official zoning map (Special)
Amdt. 1	Deletes and substitutes § 4 of Ord. BL2014-804 (Special)
BL2014-805	Amends official zoning map (Special)
BL2014-806	Amends official zoning map (Special)
BL2014-807	(Withdrawn)
BL2014-808	Amends official zoning map (Special)
BL2014-809	Amends official zoning map (Special)
BL2014-810	Amends official zoning map (Special)
BL2014-811	Amends official zoning map (Special)
BL2014-812	Amends official zoning map (Special)
BL2014-813	Amends official zoning map (Special)
BL2014-814	Amends official zoning map (Special)
BL2014-815	Amends official zoning map (Special)
BL2014-816	Amends official zoning map (Special)
Amdt. 1	Substitutes plan referenced in § 1 of Ord. BL2014-816 with new plan (Special)
BL2014-817	Amends official zoning map (Special)
BL2014-818	Adds §§ 5.04.076, 5.04.120 (5.04)
BL2014-819	Amends §§ 10.26.010, 16.24.330.E. (10.26, 16.24)
Amdt. 1	Amends §§ 1, 2 of Ord. BL2014-819 (10.26, 16.24)
BL2014-820	Authorizes agreement with Carillon II Investment Partners (Special)
BL2014-821	Amends official zoning map (Special)
BL2014-822	Amends § 7.08.010 (7.08)
BL2014-823	Authorizes participation agreement with Cumberland River Compact (Special)
BL2014-824	Designates honorary street name (Special)
BL2014-825	Amends §§ 1.01.010—1.01.050 (1.01)
BL2014-826	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-827	Amends the geographic information systems street and alley centerline layer (Special)
Amdt. 1	Substitutes the sketch incorporated into § 1 of Ord. BL2014-827 with a new sketch (Special)
BL2014-828	Abandons easement rights (Special)
BL2014-829	Abandons water main easement (Special)
BL2014-830	Abandons sewer main and easement (Special)
BL2014-831	Abandons sewer main and easement (Special)
BL2014-832	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2014-833	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2014-833 (Special)
BL2014-834	Amends official zoning map (Special)
BL2014-835	Amends official zoning map (Special)
BL2014-836	Amends official zoning map (Special)
BL2014-837	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2014-837 (Special)
BL2014-838	Amends official zoning map (Special)
BL2014-839	Amends official zoning map (Special)
BL2014-840	Adds § 7.08.090.I. (7.08)
Amdt. 1	Amends § 1 of Ord. BL2014-840 (7.08)
BL2014-841	Adds § 8.12.110 (8.12)
BL2014-842	Abandons easement rights (Special)
BL2014-843	Abandons sewer main (Special)
BL2014-844	Abandons water main and easement (Special)
BL2014-845	Authorizes agreement with Ole South/ Craighead (Special)
BL2014-846	Amends §§ 2.224.020, 2.224.040.A., B., 2.224.050 (2.224)
BL2014-847	Adds § 4.12.230 (4.12)
BL2014-848	Authorizes the health and educational facilities board to negotiate and accept payments in lieu of ad valorem taxes (Special)
BL2014-849	Names the victim resource center (Special)
BL2014-850	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-851	Abandons sewer and water mains (Special)
BL2014-852	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-853	Amends official zoning map (Special)
BL2014-854	Amends official zoning map (Special)
BL2014-855	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2014-855 (Special)
BL2014-856	Amends official zoning map (Special)
BL2014-857	(Withdrawn)
BL2014-858	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2014-858 (Special)
BL2014-859	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2014-859 (Special)
BL2014-860	(Withdrawn)
BL2014-861	Authorizes the acquisition of easements (Special)
BL2014-862	Authorizes the acquisition of easements (Special)
BL2014-863	Authorizes the acquisition of easements (Special)
BL2014-864	Authorizes the acquisition of easements (Special)
BL2014-865	Authorizes the acquisition of easements (Special)
BL2014-866	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-867	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-868	Abandons easement rights (Special)
BL2014-869	Abandons existing sewer pump station and easement (Special)
BL2014-870	Authorizes agreement with Normandy II General Partners (Special)
BL2014-871	Amends § 5.24.010 (5.24)
BL2014-872	Authorizes agreement with LPC Contractors of Southeast, Inc. (Special)
BL2014-873	Authorizes agreement with Laurel Property, LLC (Special)
BL2014-874	Abandons an existing public utility drainage easement (Special)
BL2014-875	Abandons easement rights (Special)
BL2014-876	Abandons easement rights (Special)
BL2014-877	Abandons easement rights (Special)
BL2014-878	(Withdrawn)
BL2014-879	Amends official zoning map (Special)
BL2014-880	(Withdrawn)
BL2014-881	Amends official zoning map (Special)
BL2014-882	Amends official zoning map (Special)
BL2014-883	Amends official zoning map (Special)
BL2014-884	Amends official zoning map (Special)
BL2014-885	Amends official zoning map (Special)
BL2014-886	Amends official zoning map (Special)
BL2014-887	Amends official zoning map (Special)
BL2014-888	Amends official zoning map (Special)
BL2014-889	Amends official zoning map (Special)
BL2014-890	Amends official zoning map (Special)
BL2014-891	Amends official zoning map (Special)
BL2014-892	Amends official zoning map (Special)
BL2014-893	Amends official street and alley acceptance and maintenance map (Special)
BL2014-894	Approves an affiliation agreement by and between Vanderbilt University and the Metropolitan Government of Nashville and Davidson County (Special)
BL2014-895	Declares surplus and approves disposition of property (Special)
BL2014-896	Amends official zoning map (Special)
Amdt. 1	Substitutes plan referenced in § 1 of Ord. BL2014-896 with new plan (Special)
BL2014-897	Amends official zoning map (Special)
Amdt. 1	Substitutes sketch referenced in § 1 of Ord. BL2014-897 (Special)
BL2014-898	Amends official zoning map (Special)
BL2014-899	Amends official zoning map (Special)
BL2014-900	Amends official zoning map (Special)
BL2014-901	Amends official zoning map (Special)
BL2014-902	Amends official zoning map (Special)
BL2014-903	Amends official zoning map (Special)
BL2014-904	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2014-905	Amends official zoning map (Special)
BL2014-906	Amends official zoning map (Special)
BL2014-907	Amends official zoning map (Special)
BL2014-908	Amends §§ 17.04.060, 17.08.030, 17.16.050; adds § 17.16.070.P.3. (17.04, 17.08, 17.16)
BL2014-909	Amends §§ 17.04.060, 17.08.030; adds § 17.16.250.E. (17.04, 17.08, 17.16)
BL2014-910	Amends §§ 15.64.010, 15.64.130.A.; adds § 15.64.131 (15.64)
BL2014-911	Establishes a program for the purpose of providing assistance to low-income elderly residents (Special)
BL2014-912	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-913	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-914	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights (Special)
BL2014-915	Authorizes the acquisition of certain drainage easements, temporary construction easements, and property rights (Special)
BL2014-916	Authorizes the acquisition of certain drainage easements, temporary construction easements, and property rights (Special)
BL2014-917	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights (Special)
BL2014-918	Authorizes the acquisition of certain drainage easements, temporary construction easements, and property rights (Special)
BL2014-919	Abandons easement rights (Special)
BL2014-920	Abandons easement rights (Special)
BL2014-921	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-922	Amends §§ 10.24.010, 10.24.080, 10.24.150 (10.24)
BL2014-923	Authorizes the director of public property, or his designee, to transfer a quitclaim deed (Special)
BL2014-924	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-925	Adds §§ 6.75.010—6.75.580 (6.75)
Amdt. 1	Amends § 6.75.320.B. (6.75)
BL2014-926	Subsidizes the cost of rain barrels (Special)
BL2014-927	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-928	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-929	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-930	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-931	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
Amdt. 1	Deletes and substitutes project number of Ord. BL2014-931 (Special)
BL2014-932	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-933	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-934	Amends official zoning map (Special)
BL2014-935	Amends official zoning map (Special)
BL2014-936	Amends official zoning map (Special)
BL2014-937	Amends official zoning map (Special)
BL2014-938	Amends official zoning map (Special)
BL2014-939	Amends official zoning map (Special)
BL2014-940	Amends official zoning map (Special)
BL2014-941	Amends official zoning map (Special)
BL2014-942	Amends official zoning map (Special)
BL2014-943	Amends official zoning map (Special)
BL2014-944	Amends official zoning map (Special)
BL2014-945	Amends official zoning map (Special)
BL2014-946	Amends official zoning map (Special)
BL2014-947	Adds §§ 13.02.010, 15.02.010, 17.04.055 (13.02, 15.02, 17.04)
BL2014-948	Approves Amendment No. 3 to the Five Points Redevelopment Plan (Special)
Amdt. 1	Replaces map incorporated into § 1 of Ord. BL2014-948 (Special)
BL2014-949	(Withdrawn)
BL2014-950	(Withdrawn)
BL2014-951	Adds § 6.28.030 (6.28)
Amdt. 1	Amends § 6.28.030.G., K., R. (6.28)
BL2014-952	Amends §§ 6.74.010—6.74.500 (6.74)
Amdt. 1	Amends § 6.75.050.B., C. (6.74)
BL2014-953	Authorizes the industrial development board to negotiate and accept payments in lieu of ad valorem taxes (Special)
Amdt. 1	Substitutes the PILOT agreement incorporated into § 2 of Ord. BL2014-953 (Special)
BL2014-954	Approves agreement with Live Nation Worldwide, Inc. ("Live Nation") (Special)
BL2014-955	Approves exchange of property (Special)
BL2014-956	Authorizes acceptance of easements (Special)

Ordinance Number	Disposition
BL2014-957	Authorizes the director of public property, or his designee, to accept and record a quitclaim deed (Special)
BL2014-958	Authorizes the director of public property, or his designee, to accept donation of property (Special)
BL2014-959	Authorizes the director of public property, or his designee, to accept, execute and record a quitclaim deed (Special)
BL2014-960	Approves agreement with Cumberland River Compact ("CRC") (Special)
BL2014-961	Approves agreement with CSX Transportation, Inc. (Special)
BL2014-962	Authorizes the installation, construction, and maintenance of underground encroachment (Special)
BL2014-963	Authorizes the director of public property to accept and record an easement (Special)
BL2014-964	Abandons easement rights (Special)
BL2014-965	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-966	Abandons easement rights (Special)
BL2014-967	Abandons and accepts public water main (Special)
BL2014-968	Abandons and accepts public sewer main (Special)
BL2014-969	Abandons easement rights (Special)
BL2014-970	Abandons easement rights (Special)
BL2014-971	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-972	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-973	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-974	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2014-975	Abandons and accepts public sewer main (Special)
BL2014-976	Accepts water main (Special)
BL2014-977	Authorizing the acquisition of permanent easements by negotiation, condemnation or fee simple take (Special)
BL2014-978	(Withdrawn)
BL2014-979	Authorizing the acquisition of permanent and temporary drainage easements by negotiation, condemnation or fee simple take (Special)
BL2014-980	Abandons and relocates sewer main (Special)
BL2014-981	Authorizes the installation, construction, and maintenance of underground encroachments (Special)
BL2014-982	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-983	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-984	Amends the geographic information systems street and alley centerline layer (Special)
BL2014-985	Amends official zoning map (Special)
BL2014-986	Amends official zoning map (Special)
BL2014-987	Amends official zoning map (Special)
BL2014-988	Amends official zoning map (Special)
BL2014-989	Amends official zoning map (Special)
BL2014-990	Amends § 2.212.010 (2.212)
BL2014-991	Amends §§ 4.20.080, 4.20.090.A., 4.20.100.A., B. (4.20)
Amdt. 1	Amends § 4.20.100.A. (4.20)
BL2014-992	(Withdrawn)
BL2014-993	Adds §§ 6.73.010—6.73.510 (6.73)
BL2014-994	Approves Amendment No. 1 to the Division Street Extension Phase 1 Right-of-Way Acquisition (Special)
BL2014-995	Adds § 15.52.010.C. (15.52)
BL2014-996	Amends § 13.08.010 (13.08)
BL2014-997	Abandons easement rights (Special)
BL2015-998	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-999	Abandons easement rights (Special)
BL2015-1000	Amends official zoning map (Special)
BL2015-1001	Amends official zoning map (Special)
BL2015-1002	Amends official zoning map (Special)
BL2015-1003	Amends official zoning map (Special)
BL2015-1004	Amends official zoning map (Special)
BL2015-1005	Amends official zoning map (Special)
BL2015-1006	Amends official zoning map (Special)
BL2015-1007	Amends §§ 3.30.020, 3.30.030, 3.30.050, 3.30.060, 3.30.120; repeals § 3.30.130 (3.30)
BL2015-1008	Amends § 8.12.030.C. (8.12)
Amdt. 1	Amends § 8.12.030.C.3. (8.12)
BL2015-1009	(Failed)
BL2015-1010	(Withdrawn)
BL2015-1011	Approves lease agreement (Special)
BL2015-1012	Abandons sewer easement (Special)
BL2015-1013	Abandons sewer line and easement (Special)
BL2015-1014	Authorizes participation agreement with Vanderbilt University (Special)
BL2015-1015	Amends § 16.24.340.C.1. (16.24)
BL2015-1016	Adds § 16.28.235 (16.28)
BL2015-1017	(Withdrawn)
BL2015-1018	Approves a lease agreement with Nashville Classical, Inc. (Special)

Ordinance Number	Disposition
BL2015-1019	Authorizes the director of public property administration, or his designee, to execute a special warranty deed (Special)
Amdt. 1	Amends recital clause and § 1 of Ord. BL2015-1019 (Special)
BL2015-1020	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1021	Authorizes acquisition of right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation, for use in public projects (Special)
BL2015-1022	Abandons public sewer main and water main (Special)
BL2015-1023	Amends official zoning map (Special)
BL2015-1024	Amends official zoning map (Special)
BL2015-1025	Amends official zoning map (Special)
BL2015-1026	Amends official zoning map (Special)
BL2015-1027	Amends official zoning map (Special)
BL2015-1028	Amends official zoning map (Special)
BL2015-1029	Amends official zoning map (Special)
BL2015-1030	Amends official zoning map (Special)
BL2015-1031	(Withdrawn)
BL2015-1032	Amends official zoning map (Special)
BL2015-1033	Amends official zoning map (Special)
BL2015-1034	Amends official zoning map (Special)
BL2015-1035	Amends official zoning map (Special)
BL2015-1036	Amends § 17.08.030 (17.08)
BL2015-1037	Amends official zoning map (Special)
BL2015-1038	Amends § 17.16.070.I. (17.16)
BL2015-1039	Abandons easement (Special)
BL2015-1040	Authorizes Nashville Downtown Partnership to install, construct and maintain a bike kiosk (Special)
BL2015-1041	Adopts the geographic information systems street and alley centerline layer, with the recordation of renaming, additions and deletions of acceptances and abandonments (Special)
BL2015-1042	Approves renewal of ground lease (Special)
BL2015-1043	Amends official zoning map (Special)
Amdt. 1	Substitutes the plan referenced in § 1 of Ord. BL2015-1043 (Special)
BL2015-1044	Amends official zoning map (Special)
BL2015-1045	Amends official zoning map (Special)
BL2015-1046	Amends official zoning map (Special)
BL2015-1047	Amends official zoning map (Special)
BL2015-1048	Amends official zoning map (Special) Amends § 17.37.010 (17.37)
BL2015-1049	Amends official zoning map (Special)
BL2015-1050	Amends official zoning map (Special)
BL2015-1051	Amends official zoning map (Special)
BL2015-1052	Amends official zoning map (Special)
BL2015-1053	Amends §§ 17.12.060.F., 17.37.010, 17.40.170 (17.12, 17.37, 17.40)
Amdt. 1	Adds § 4 and renumbers remaining sections accordingly of BL2015-1053 (Special)
Amdt. 2	Amends § 2 to substitute exhibit A of BL2015-1053 (17.37)
BL2015-1054	Amends official zoning map (Special)
BL2015-1055	(Withdrawn)
BL2015-1056	Amends § 5.12.060.A.4. (5.12)
BL2015-1057	Amends § 15.16.390 (15.16)
BL2015-1058	Declares surplus and approves disposition of property (Special)
BL2015-1059	Abandons easement (Special)
BL2015-1060	Abandons and accepts sewer main and easement (Special)
BL2015-1061	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1062	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1063	Amends §§ 1.01.010—1.01.050 (1.01)
BL2015-1064	(Deferred)
BL2015-1065	Amends § 3.52.010 (3.52)
BL2015-1066	(Withdrawn)
BL2015-1067	Approves agreement relating to the sale and redevelopment of property (Special)
BL2015-1068	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1069	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1070	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1071	Authorizes Fountains of Germantown Holdings, LLC to construct and install structural and aerial encroachments (Special)
BL2015-1072	Authorizes Gulch Hotel Owner, LLC; AJ Berger Gulch Developer, LLC to install, construct and maintain an aerial and underground encroachment (Special)
BL2015-1073	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2015-1074	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2015-1075	Abandons sanitary sewer line and easement (Special)
BL2015-1076	Amends official zoning map (Special)
Amdt. 1	Renumbers § 3 as § 4 and adds new § 3 of Ord. BL2015-1076 (Special)
BL2015-1077	Amends official zoning map (Special)
BL2015-1078	Amends official zoning map (Special)
BL2015-1079	Amends official zoning map (Special)
BL2015-1080	Amends official zoning map (Special)
BL2015-1081	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2015-1082	Amends official zoning map (Special)
BL2015-1083	Amends official zoning map (Special)
BL2015-1084	Amends official zoning map (Special)
BL2015-1085	Amends official zoning map (Special)
BL2015-1086	Amends official zoning map (Special)
Amdt. 1	Amends § 4 and renumbers § 8 as § 9 and adds new § 8 of Ord. BL2015-1086 (Special)
BL2015-1087	Amends official zoning map (Special)
BL2015-1088	Amends official zoning map (Special)
BL2015-1089	Amends official zoning map (Special)
BL2015-1090	Amends official zoning map (Special)
BL2015-1091	Amends official zoning map (Special)
BL2015-1092	Amends official zoning map (Special)
BL2015-1093	Amends official zoning map (Special)
BL2015-1094	Amends official zoning map (Special)
BL2015-1095	Amends official zoning map (Special)
BL2015-1096	Amends official zoning map (Special)
BL2015-1097	Amends official zoning map (Special)
BL2015-1098	Amends § 17.08.030; adds § 17.16.040.A.7., 8. (17.08, 17.16)
BL2015-1099	Amends §§ 17.04.060, 17.08.030; adds § 17.16.090.G. (17.04, 17.08, 17.16)
BL2015-1100	Amends §§ 17.40.710, 17.40.730.A. (17.40)
Amdt. 1	Deletes and substitutes § 2 of Ord. BL2015-1100 (17.40)
BL2015-1101	Amends official zoning map (Special)
BL2015-1102	Amends § 13.24.090.B. (13.24)
BL2015-1103	Amends Ord. BL2007-1461 (Special)
BL2015-1104	Designates honorary street name (Special)
BL2015-1105	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1106	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1107	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1108	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2015-1109	Abandons portion of public utility and drainage easement (Special)
BL2015-1110	Abandons sanitary sewer easement (Special)
BL2015-1111	Abandons easements (Special)
BL2015-1112	Abandons public water main easement (Special)
BL2015-1113	Authorizes the replacement of public water main and accepts public water main and easement (Special)
BL2015-1114	(Withdrawn)
BL2015-1115	Authorizes negotiation and acceptance of permanent easements (Special)
BL2015-1116	Abandons easement rights (Special)
BL2015-1117	Abandons easement rights (Special)
BL2015-1118	Abandons sewer main and easement and accepts water main and two fire hydrants (Special)
BL2015-1119	Abandons sanitary sewer main, manhole, and easement and accepts a new manhole (Special)
BL2015-1120	(Withdrawn)
BL2015-1121	Amends §§ 17.04.060, 17.08.030, 17.16.030, 17.16.070, 17.16.090, 17.16.160, 17.16.170, 17.16.220, 17.16.250, Table 17.20.030 (17.04, 17.08, 17.16, 17.20)
BL2015-1122	Budget ordinance for fiscal year 2016 (Special)
BL2015-1123	Establishes tax levy in the General Services District for 2015—2016 (Special)
BL2015-1124	Establishes a program for the purpose of providing assistance to low-income elderly residents (Special)
BL2015-1125	Establishes the metropolitan government office of family safety (Special)
BL2015-1126	Adds § 5.16.060.E. (5.15)
BL2015-1127	Authorizes the industrial development board to negotiate and accept payments in lieu of ad valorem taxes (Special)
BL2015-1128	Authorizes the industrial development board to negotiate and accept payments in lieu of ad valorem taxes (Special)
BL2015-1129	Adds § 16.24.185 (16.24)
BL2015-1130	Approves three agreements between the metropolitan government and the electric power board of the metropolitan government (collectively, the "system owners") and (1) the United States Marshals Service (USMS), (2) Belmont University, and (3) Smyrna/Rutherford County Airport Authority (SRCAA) (Special)
BL2015-1131	Approves relocation agreement between the metropolitan government and Google Fiber Company (Special)
BL2015-1132	Authorizes the director of public property to execute two quitclaim deeds (Special)
BL2015-1133	Approves a construction agreement with CSX Transportation, Inc. (Special)
BL2015-1134	Abandons easement rights (Special)
BL2015-1135	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1136	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1137	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1138	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1139	Amends § 17.04.060; adds §§ 17.10.010—17.10.040 (17.04, 17.10)

Ordinance Number	Disposition
BL2015-1140	Amends § 17.40.720.A. (17.40)
BL2015-1141	Authorizes Nashville Urban Venture, LLC, to install, construct, and maintain an underground encroachment (Special)
BL2015-1142	Adopts capital improvements budget and program 2015—2016 through 2020—2021 (Special)
BL2015-1143	Authorizes the industrial development board to negotiate and accept payments in lieu of ad valorem taxes (Special)
BL2015-1144	(Withdrawn)
BL2015-1145	Amends §§ 10.64.010, 10.64.012, 10.64.015, 10.64.016, 10.64.017, 16.08.010, 16.08.012, 16.08.014, 16.08.016, 16.12.120, 16.12.130, 16.12.140, 16.16.180, 16.16.190, 16.16.230, 16.16.240, 16.16.260, 16.28.030 (10.64, 16.08, 16.12, 16.16, 16.28)
BL2015-1146	Amends § 12.42.070; adds § 12.44.085 (12.42, 12.44)
BL2015-1147	(Withdrawn)
BL2015-1148	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1149	Abandons sewer main and easement and accepts new manhole and sewer main (Special)
BL2015-1150	Abandons sanitary sewer main and easement (Special)
BL2015-1151	Authorizes donation of vests to underfunded law enforcement (Special)
BL2015-1152	Repeals § 17.12.120 (17.12)
BL2015-1153	Amends §§ 17.04.060, 17.08.010, 17.08.020, 17.08.030, 17.12.020, Table 17.12.020A., Table 17.12.020B., Table 17.12.020D., 17.12.030 C. 3., Table 17.12.030A., Table 17.12.030B., 17.12.060, 17.12.070, 17.12.080, 17.12.090, 17.16.020, 17.16.030 B.3., D., 17.16.050 A., D.2., 17.16.070 K.1., 2., N.3., P.1., S.1., 17.16.120 D.12., 17.16.190 E.2., 17.16.210 A.2., 17.16.250 B.1., Table 17.24.230, 17.28.030 A.3.b.i., B.2.b.i., Table 17.28.102, 17.32.050 G.2., 6., H.2., 17.32.110, 17.32.130, 17.32.145 E.2., 3., 17.32.150 A., 17.36.070 C.3., 17.36.160 A., 17.36.390 D., 17.40.170 D., 17.40.650 E.2., 17.40.670 A., 17.40.690 B. (17.04, 17.08, 17.12, 17.16, 17.24, 17.28, 17.32, 17.36, 17.40)
BL2015-1154	Amends official zoning map (Special)
BL2015-1155	(Withdrawn)
BL2015-1156	Amends official zoning map (Special)
BL2015-1157	Amends official zoning map (Special)
BL2015-1158	Amends official zoning map (Special)
BL2015-1159	Amends official zoning map (Special)
BL2015-1160	Amends official zoning map (Special)
BL2015-1161	Amends official zoning map (Special)
BL2015-1162	Amends official zoning map (Special)
BL2015-1163	Amends official zoning map (Special)
BL2015-1164	Amends official zoning map (Special)
BL2015-1165	Amends official zoning map (Special)
BL2015-1166	Amends official zoning map (Special)
BL2015-1167	(Withdrawn)
BL2015-1168	(Withdrawn)
BL2015-1169	Amends official zoning map (Special)
BL2015-1170	Amends official zoning map (Special)
BL2015-1171	Amends official zoning map (Special)
BL2015-1172	Amends official zoning map (Special)
BL2015-1173	Amends official zoning map (Special)
BL2015-1174	Amends official zoning map (Special)
BL2015-1175	Amends official zoning map (Special)
BL2015-1176	Amends official zoning map (Special)
BL2015-1177	Amends official zoning map (Special)
BL2015-1178	(Withdrawn)
BL2015-1179	Amends official zoning map (Special)
BL2015-1180	Amends official zoning map (Special)
BL2015-1181	Amends official zoning map (Special)
BL2015-1182	Amends official zoning map (Special)
BL2015-1183	Amends official zoning map (Special)
BL2015-1184	Amends official zoning map (Special)
BL2015-1185	Amends official zoning map (Special)
BL2015-1186	Amends official zoning map (Special)
BL2015-1187	Amends official zoning map (Special)
BL2015-1188	Amends official zoning map (Special)
BL2015-1189	Amends official zoning map (Special)
BL2015-1190	Amends official zoning map (Special)
BL2015-1191	Amends official zoning map (Special)
BL2015-1192	Amends official zoning map (Special)
BL2015-1193	Amends official zoning map (Special)
BL2015-1194	Amends official zoning map (Special)
BL2015-1195	Amends official zoning map (Special)
BL2015-1196	Amends official zoning map (Special)
BL2015-1197	Amends official zoning map (Special)
BL2015-1198	Amends official zoning map (Special)
BL2015-1199	Amends official zoning map (Special)
BL2015-1200	Amends official zoning map (Special)
BL2015-1201	Amends official zoning map (Special)
BL2015-1202	Amends official zoning map (Special)
BL2015-1203	Amends official zoning map (Special)
BL2015-1204	Amends official zoning map (Special)
BL2015-1205	Amends official zoning map (Special)
Amdt. 1	Adds § 5 and renumbers the remaining sections accordingly of Ord. BL2015-1205 (Special)
BL2015-1206	Amends official zoning map (Special)
BL2015-1207	Amends official zoning map (Special)
BL2015-1208	Amends official zoning map (Special)
BL2015-1209	(Withdrawn)
BL2015-1210	Amends §§ 17.04.060, 17.08.030.D., Table 17.20.030 (17.04, 17.08, 17.20)

Ordinance Number	Disposition
BL2015-1211	(Failed)
BL2015-1212	(Failed)
BL2015-1213	Amends §§ 15.12.040, 15.16.200.A., 15.36.050.C. (15.12, 15.16, 15.36)
Amdt. 1	Amends § 3 of BL2015-1213 (15.36)
BL2015-1214	Amends §§ 1.01.010—1.01.050 (1.01)
BL2015-1215	Abandons easement rights (Special)
BL2015-1216	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2015-1217	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2015-1218	Amends official zoning map (Special)
BL2015-1219	Amends official zoning map (Special)
BL2015-1220	Amends official zoning map (Special)
BL2015-1221	Amends official zoning map (Special)
BL2015-1222	Amends official zoning map (Special)
BL2015-1223	Amends official zoning map (Special)
BL2015-1224	Amends official zoning map (Special)
BL2015-1225	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of BL2015-1225 (Special)
BL2015-1226	Amends official zoning map (Special)
BL2015-1227	Amends official zoning map (Special)
BL2015-1228	Amends official zoning map (Special)
BL2015-1229	Amends official zoning map (Special)
BL2015-1230	Amends official zoning map (Special)
Amdt. 1	Deletes and substitutes § 4 of Ord. BL2015-1230 (Special)
BL2015-1231	Amends official zoning map (Special)
BL2015-1232	Amends official zoning map (Special)
BL2015-1233	Amends official zoning map (Special)
BL2015-1234	Amends official zoning map (Special)
BL2015-1235	Amends official zoning map (Special)
BL2015-1236	Amends official zoning map (Special)
BL2015-1237	(Withdrawn)
BL2015-1238	Amends official zoning map (Special)
BL2015-1239	Amends official zoning map (Special)
BL2015-1240	Amends official zoning map (Special)
BL2015-1241	Amends official zoning map (Special)
BL2015-1242	Amends official zoning map (Special)
BL2015-1243	Amends official zoning map (Special)
BL2015-1244	Amends official zoning map (Special)
BL2015-1245	Amends official zoning map (Special)
Amdt. 1	Adds exhibit and amends § 4 of BL2015-1245 (Special)
BL2015-1246	Amends official zoning map (Special)
BL2015-1247	Amends official zoning map (Special)
Amdt. 1	Deletes and substitutes § 4 of Ord. BL2015-1247 (Special)
BL2015-1248	Amends official zoning map (Special)
BL2015-1249	Amends official zoning map (Special)
BL2015-1250	Amends official zoning map (Special)
BL2015-1251	Amends official zoning map (Special)
BL2015-1252	Amends official zoning map (Special)
BL2015-1253	Amends § 17.37.010 (17.37)
Amdt. 1	Amends § 1 to substitute exhibit A of BL2015-1253 (17.37)
BL2015-1254	(Withdrawn)
BL2015-1255	(Withdrawn)
BL2015-1256	Amends official zoning map (Special)
BL2015-1257	(Withdrawn)
BL2015-1258	Amends official zoning map (Special)
BL2015-1259	Amends official zoning map (Special)
BL2015-1260	(Withdrawn)
BL2015-1261	Amends official zoning map (Special)
BL2015-1262	Amends official zoning map (Special)
BL2015-1263	Amends official zoning map (Special)
BL2015-1264	(Failed)
BL2015-1265	(Failed)
BL2015-1266	(Withdrawn)
BL2015-1267	Amends official zoning map (Special)
BL2015-1268	Amends official zoning map (Special)
BL2015-1269	Amends official zoning map (Special)
BL2015-1270	(Failed)
BL2015-1271	Amends official zoning map (Special)
BL2015-1272	(Withdrawn)
BL2015-1273	Approves the Bordeaux Redevelopment Plan (Special)
BL2015-1274	Approves the Cayce Place Redevelopment Plan (Special)
BL2015-1275	Authorizes exchange of properties (Special)
BL2015-1276	Amends § 2.175.020.D. (2.175)
BL2015-1277	Adds § 2.112.050 (2.112)
BL2015-1278	Amends § 7.08.090.E. (7.08)
BL2015-1279	(Withdrawn)
BL2015-1280	Adds § 16.24.330.Q. (16.24)
Amdt. 1	Deletes and substitutes § 1 of BL2015-1280 (16.24)
BL2015-1281	Authorizes the metropolitan development and housing agency to negotiate and accept payments in lieu of ad valorem taxes (Special)
BL2015-1282	Adopts revised pay scale for poll officials (Special)
BL2015-1283	Approves agreement for sale of property (Special)
Amdt. 1	Replaces exhibit of BL2015-1283 (Special)
BL2015-1284	Approves third amendment to the lease entered into between the Metropolitan Government of Nashville and Davidson County and Customs House Associates (Special)
BL2015-1285	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1286	Amends the geographic information systems street and alley centerline layer (Special)

Ordinance Number	Disposition
BL2015-1287	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1288	Authorizes easements (Special)
BL2015-1289	Accepts donation of real property (Special)
BL2015-1290	Authorizes acquisition and conveyance of certain right-of-way, easements and property rights (Special)
BL2015-1291	Approves agreement for painting and repairs of existing roadway bridge (Special)
BL2015-1292	Approves agreement for the construction of a new overhead highway bridge (Special)
BL2015-1293	Abandons easement rights (Special)
BL2015-1294	Approves parking agreement (Special)
BL2015-1295	Authorizes NGI Acquisitions, LLC dba Skyhouse Nashville, LLC, to install, construct, and maintain an underground encroachments (Special)
BL2015-1296	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1297	Amends official zoning map (Special)
BL2015-1298	(Withdrawn)
BL2015-1299	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3 and 4 of BL2015-1299 (Special)
BL2015-1300	(Withdrawn)
BL2015-1301	Amends official zoning map (Special)
BL2015-1302	(Withdrawn)
BL2015-1303	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1304	Relinquishes interest in a building and parcel of property located at 1312 3rd Avenue North in exchange for payment (Special)
BL2015-1305	Declares surplus and approves disposition of property (Special)
BL2015-1306	Authorizes the industrial development board to negotiate and accept payments in lieu of ad valorem taxes (Special)
BL2015-1307	Approves agreement and easement relating to construction of pedestrian tunnel (Special)
BL2015-1308	Approves agreement for conveyance of property (Special)
BL2015-1309	Approves lease agreement (Special)
BL2015-1310	Abandons sewer main and easement (Special)
BL2015-1311	Abandons easement rights (Special)
BL2015-1312	Abandons and accepts public sewer main and easement (Special)
Amdt. 1	Amends § 1 of BL2015-1312 (Special)
BL2015-1313	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-1	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-2	Authorizes installation, construction and maintenance of an automated bike kiosk (Special)
BL2015-3	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-4	Approves agreement related to distribution of funds (Special)
BL2015-5	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2015-6	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2015-7	Abandons and accepts water main (Special)
BL2015-8	Abandons and accepts water main and easement (Special)
BL2015-9	Abandons and accepts sewer main (Special)
BL2015-10	Abandons and replaces storm sewer main and easement (Special)
BL2015-11	Authorizes construction of sewer main (Special)
BL2015-12	Abandons and accepts sewer main (Special)
BL2015-13	Amends § 17.08.030; adds § 17.16.130.C. (17.08, 17.16)
Amdt. 1	Amends § 2 of BL2015-13 (17.16)
BL2015-14	Amends §§ 17.04.060, 17.08.030; adds § 17.16.130.D., E. (17.04, 17.08, 17.16)
Amdt. 1	Amends § 3 of BL2015-14 (17.16)
BL2015-15	Amends official zoning map (Special)
BL2015-16	Amends official zoning map (Special)
BL2015-17	(Withdrawn)
BL2015-18	Amends official zoning map (Special)
BL2015-19	Amends official zoning map (Special)
BL2015-20	Amends official zoning map (Special)
BL2015-21	Amends official zoning map (Special)
Amdt. 1	Amends §§ 1 and 4 of BL2015-21 (Special)
BL2015-22	Amends official zoning map (Special)
BL2015-23	Amends official zoning map (Special)
BL2015-24	Amends official zoning map (Special)
BL2015-25	(Withdrawn)
BL2015-26	Amends official zoning map (Special)
BL2015-27	Amends official zoning map (Special)
BL2015-28	Amends official zoning map (Special)
BL2015-29	Amends official zoning map (Special)
Amdt. 1	Deletes and replaces § 4 of Ord. BL2015-29 (Special)
BL2015-30	Amends official zoning map (Special)
BL2015-31	Amends official zoning map (Special)
BL2015-32	(Withdrawn)
BL2015-33	Approves master agreement with Merrill Lynch Commodities, Inc. (Special)
BL2015-34	Approves option agreement with the Tennessee Wildlife Resources Foundation, Inc. (Special)

Ordinance Number	Disposition
BL2015-35	Approves third supplemental agreement to lease no. DACW62-1-76-1412 (Special)
BL2015-36	Authorizes Hunter Marine Transport, LLC, to install, construct, and maintain an underground and structural encroachment (Special)
BL2015-37	Authorizes permanent easement (Special)
BL2015-38	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2015-39	Abandons easement rights (Special)
BL2015-40	Abandons easement rights (Special)
BL2015-41	Abandons easement rights (Special)
BL2015-42	Abandons and accepts sewer main and easement (Special)
BL2015-43	Amends official zoning map (Special)
BL2015-44	(Withdrawn)
BL2015-45	Adds § 2.24.250.G. (2.24)
BL2015-46	Amends §§ 1.01.010—1.01.050 (1.01)
BL2015-47	Authorizes acquisition of easements and property rights (Special)
BL2015-48	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-49	Amends official zoning map (Special)
BL2015-50	Amends official zoning map (Special)
BL2015-51	Amends official zoning map (Special)
BL2015-52	Amends official zoning map (Special)
BL2015-53	Amends official zoning map (Special)
BL2015-54	Amends official zoning map (Special)
BL2015-55	Amends official zoning map (Special)
BL2015-56	Amends official zoning map (Special)
BL2015-57	Amends official zoning map (Special)
BL2015-58	Amends official zoning map (Special)
BL2015-59	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-60	Abandons easement rights (Special)
BL2015-61	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2015-62	Abandons water main (Special)
BL2015-63	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2015-64	Authorizes negotiation and acceptance of permanent and temporary easements (Special)
BL2015-65	Approves agreement for construction of pedestrian tunnel (Special)
BL2015-66	Approves license agreement (Special)
BL2015-67	Amends §§ 2.176.010—2.176.090 (2.176)
Amdt. 1	Amends § 1 of Ord. BL2015-67 (2.176)
BL2015-68	Amends § 3.08.180 (3.08)
BL2015-69	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-70	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-71	Amends official zoning map (Special)
BL2015-72	Amends official zoning map (Special)
BL2015-73	Amends official zoning map (Special)
BL2015-74	Amends official zoning map (Special)
BL2015-75	Amends official zoning map (Special)
BL2015-76	Amends official zoning map (Special)
BL2015-77	Amends official zoning map (Special)
BL2015-78	Amends official zoning map (Special)
BL2015-79	Amends official zoning map (Special)
BL2015-80	Amends official zoning map (Special)
BL2015-81	(Withdrawn)
BL2015-82	Amends official zoning map (Special)
Amdt. 1	Amends § 4, adds § 5 and renumbers the remaining sections accordingly of Ord. BL2015-82 (Special)
BL2015-83	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2015-83 (Special)
BL2015-84	Amends official zoning map (Special)
BL2015-85	Amends official zoning map (Special)
BL2015-86	Amends official zoning map (Special)
BL2015-87	Amends official zoning map (Special)
BL2015-88	Amends official zoning map (Special)
BL2015-89	Amends official zoning map (Special)
BL2015-90	Abandons and accepts water main and easements (Special)
BL2015-91	Abandons and accepts water main and easements (Special)
BL2015-92	Abandons and accepts sewer main, water main and easements (Special)
BL2015-93	Amends the geographic information systems street and alley centerline layer (Special)
BL2015-94	Amends § 6.28.030.K., Q.
Amdt. 1	Deletes § 1 of Ord. BL2015-94 (6.28)
BL2015-95	Amends § 6.75.410 (6.75)
BL2015-96	(Withdrawn)
BL2015-97	Amends official zoning map (Special)
BL2015-98	Amends official zoning map (Special)
BL2016-99	Amends § 2.132.030 (2.132)
BL2016-100	(Withdrawn)
BL2016-101	Designates honorary street name (Special)
BL2016-102	Authorizes the director of public property to execute quitclaim deed (Special)
BL2016-103	Abandons and accepts sewer main and easements (Special)
BL2016-104	Amends official zoning map (Special)
BL2016-105	Amends official zoning map (Special)
BL2016-106	Amends official zoning map (Special)
BL2016-107	Amends official zoning map (Special)
BL2016-108	Amends official zoning map (Special)
BL2016-109	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3, 4 of Ord. BL2016-019 (Special)

Ordinance Number	Disposition
BL2016-110	(Withdrawn)
BL2016-111	Amends official zoning map (Special)
BL2016-112	Amends official zoning map (Special)
BL2016-113	Amends official zoning map (Special)
BL2016-114	Amends official zoning map (Special)
BL2016-115	Amends official zoning map (Special)
BL2016-116	Amends official zoning map (Special)
BL2016-117	Amends § 17.04.060(17.04)
Amdt. 1	Amends §§ 1, 2, deletes §§ 3, 4 of Ord. BL2016-117 (17.04)
BL2016-118	(Withdrawn)
BL2016-119	Approves agreement granting CCA of Tennessee, LLC access to the 800-MHZ system (Special)
BL2016-120	Authorizes PSREG Church Street Owner, LLC to install, construct and maintain underground and aerial encroachments (Special)
BL2016-121	Abandons easement rights (Special)
BL2016-122	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-123	(Withdrawn)
BL2016-124	Repeals §§ 2.104.080, 10.28.010—10.28.090 (2.104, 10.28)
BL2016-125	Adds § 16.33.140.m., n. (16.33)
BL2016-126	Authorizes acquisition of property by negotiation or condemnation (Special)
BL2016-127	Authorizes disposition of surplus property (Special)
BL2016-128	Authorizes disposition of surplus property (Special)
BL2016-129	Authorizes acquisition of permanent and temporary easements through negotiation, condemnation, or fee simple take (Special)
BL2016-130	Abandons and accepts water main, fire hydrant and easements (Special)
BL2016-131	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-132	Amends §§ 17.04.060, 17.08.030, 17.16.050.D (17.04, 17.08, 17.16)
Amdt. 1	Amends §§ 1, 2, of Ord. BL2016-132 (17.04)
Amdt. 2	Amends § 1 of Ord. BL2016-132 (17.04)
BL2016-133	Adds §§ 17.40.055, 17.40.780—17.40-820, ; amends §§ 17.37.010, 17.40.105; repeals §§ 17.10.010—17.10.040, 17.36.090.B. (17.10, 17.36, 17.37, 17.40)
Amdt. 1	Amends § 1 of Ord. BL2016-133 (17.40)
Amdt. 2	Amends § 7 of Ord. BL2016-133 (Special)
BL2016-134	(Withdrawn)
BL2016-135	Amends official zoning map (Special)
BL2016-136	Amends official zoning map (Special)
BL2016-137	Amends official zoning map (Special)
BL2016-138	Amends official zoning map (Special)
BL2016-139	Amends official zoning map (Special)
BL2016-140	(Failed)
BL2016-141	(Failed)
BL2016-142	Amends official zoning map (Special)
BL2016-143	Amends official zoning map (Special)
BL2016-144	Amends official zoning map (Special)
BL2016-145	Amends official zoning map (Special)
BL2016-146	Amends official zoning map (Special)
BL2016-147	Amends § 2.212.030.C. (2.212)
BL2016-148	Repeals § 6.75.120.C.4. (6.75)
BL2016-149	Authorizes participation agreement with Capitol View (Special)
Amdt. 1	Amends Exhibit 2 of Ord. BL2016-149 (Special)
BL2016-150	Authorizes the director of public property to execute quitclaim deed (Special)
BL2016-151	Approves lease agreement (Special)
BL2016-152	Authorizes CFD Sobro, LLC to install, construct and maintain underground and aerial encroachments (Special)
BL2016-153	Amends official zoning map (Special)
BL2016-154	(Withdrawn)
BL2016-155	(Withdrawn)
BL2016-156	Authorizes the establishment of application and fee requirements for motor vehicle race track licensure (Special)
BL2016-157	Adds §§ 5.06.010—5.06.060 (5.06)
BL2016-158	(Withdrawn)
BL2016-159	(Withdrawn)
BL2016-160	Amends § 7.08.090.A. (7.08)
Amdt. 1	Amends § 1 of Ord. BL2016-160 (7.08)
BL2016-161	(Failed)
BL2016-162	Abandons sanitary sewer easement (Special)
Amdt. 1	Adds the number "1" to the end of the instrument number in the caption, the first recital and section 1 (Special)
BL2016-163	Abandons and accepts sewer main and easement (Special)
BL2016-164	Abandons and accepts sewer main and manhole (Special)
BL2016-165	Abandons and accepts sewer main (Special)
BL2016-166	Amends official zoning map (Special)
BL2016-167	Amends official zoning map (Special)
BL2016-168	Amends official zoning map (Special)
BL2016-169	Amends official zoning map (Special)
BL2016-170	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2016-170 (Special)
BL2016-171	(Withdrawn)
BL2016-172	Amends official zoning map (Special)
BL2016-173	Amends official zoning map (Special)
BL2016-174	Amends official zoning map (Special)
BL2016-175	Amends official zoning map (Special)
BL2016-176	Amends § 2.120.100 (2.120)
BL2016-177	Amends § 6.28.010 (6.28)

Ordinance Number	Disposition
BL2016-178	Amends § 16.28.240.C. (16.28)
Amdt. 1	Amends § 1 of Ord. BL2016-178 (16.28)
BL2016-179	Designates the position of business development officer as a position in the classified service (Special)
BL2016-180	Accepts donation (Special)
BL2016-181	Approves lease agreement (Special)
BL2016-182	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-183	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-184	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-185	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-186	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-187	Authorizes the director of public property to execute quitclaim deed (Special)
BL2016-188	(Withdrawn)
BL2016-189	Amends official zoning map (Special)
BL2016-190	Amends official zoning map (Special)
BL2016-191	Amends official zoning map (Special)
BL2016-192	Amends official zoning map (Special)
BL2016-193	Amends official zoning map (Special)
BL2016-194	Amends official zoning map (Special)
BL2016-195	Amends official zoning map (Special)
BL2016-196	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2016-196 (Special)
BL2016-197	Amends official zoning map (Special)
BL2016-198	Amends official zoning map (Special)
BL2016-199	Amends official zoning map (Special)
BL2016-200	Amends official zoning map (Special)
BL2016-201	Amends official zoning map (Special)
BL2016-202	Amends official zoning map (Special)
BL2016-203	Amends official zoning map (Special)
BL2016-204	Amends official zoning map (Special)
BL2016-205	Amends § 10.18.020 (10.18)
Amdt. 1	Amends § 1 of Ord. BL2016-205 (10.18)
BL2016-206	Adds § 13.32.050 (13.32)
Amdt. 1	Amends § 1 of Ord. BL2016-206 (13.32)
BL2016-207	Amends §§ 1.01.010—1.01.050 (1.01)
BL2016-208	Abandons and accepts water main and easement (Special)
BL2016-209	Abandons and accepts sewer main and easement (Special)
BL2016-210	Abandons sewer main, manhole assembly and easements (Special)
BL2016-211	Authorizes Delray GP @ Madison Avenue, LLC to install, construct and maintain underground and aerial encroachments (Special)
BL2016-212	(Withdrawn)
BL2016-213	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2016-214	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2016-215	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2016-216	Authorizes the construction of new water main and acquires property rights (Special)
BL2016-217	Amends official zoning map (Special)
BL2016-218	Amends §§ 17.40.720.B., 17.40.730.D., 17.40.740.C.5. (17.40)
BL2016-219	(Withdrawn)
BL2016-220	Amends § 2.40.115 (2.40)
BL2016-221	Repeals §§ 6.12.010—6.12.090 (6.12)
BL2016-222	Amends §§ 8.04.020, 8.04.030, 8.04.040.A., 8.04.060 (8.04)
BL2016-223	Adds § 12.20.080; amends §§ 12.84.030, 16.28.235 (12.20, 12.84, 16.28)
Amdt. 1	Amends § 3 of Ord. BL2016-223 (16.28)
BL2016-224	Extends the terms of contract numbers 19448 and 19572 (Special)
BL2016-225	Approves lease agreement (Special)
BL2016-226	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-227	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-228	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-229	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-230	Abandons and accepts sewer and water main and easements (Special)
BL2016-231	Abandons easement rights (Special)
BL2016-232	Budget ordinance for fiscal year 2017 (Special)
BL2016-233	Establishes tax levy in the General Services District for 2016—2017 (Special)
BL2016-234	Amends § 10.56.020.A., H. (10.56)
BL2016-235	Amends §§ 2.62.030, 2.62.040, 2.62.050; adds § 12.56.170; amends § 13.20.030 (2.62, 12.56, 13.20)
Amdt. 1	Amends §§ 4—7 of Ord. BL2016-235 (2.62, 12.56)
BL2016-236	Amends § 6.26.060.A. (6.26)
BL2016-237	Adds §§ 2.30.010—2.30.040 (2.30)
BL2016-238	Amends §§ 6.06.040, 6.12.030, 16.08.012 (6.06, 6.12, 16.08)
Amdt. 1	Repeals § 2 of Ord. BL2016-238 (6.12)
Amdt. 2	Amends § 3 of Ord. BL2016-238 (16.08)
BL2016-239	(Withdrawn)
BL2016-240	Amends § 13.20.030.C. (13.20)

Ordinance Number	Disposition
BL2016-241	Creates positions of Accountant 1, Accountant 2, Accountant 3, Administrative Services Division Manager, Assistant Metropolitan Attorney 1, Assistant Metropolitan Attorney 2, Assistant Metropolitan Attorney 3, Assistant Metropolitan Attorney 4, Assistant Public Defender 1, Assistant Public Defender 2, Assistant Public Defender 3, Assistant Public Defender 4, Beer Permit Inspector 3, Breathing Apparatus Technician, Correctional Officer Trainee, Engineer Manager, Fire Captain Senior, Fire Operations Manager, Fire Plans Examiner 1, Fire Plans Examiner 2, Helicopter Pilot, Information Systems Advisor 3, Management & Budget Analyst 1, Management & Budget Analyst 2, Management & Budget Analyst 3, Operations Manager, Procurement Officer 1, Procurement Officer 2, Procurement Officer 3, Technical Services Administrator, Technical Services Manager, Victim's Advocate 1, Victim's Advocate 2, Part-Time Worker 4, Seasonal Worker 6, and Seasonal Worker 7 (Special)
BL2016-242	(Withdrawn)
BL2016-243	Approves agreement granting Lipscomb University access to the 800-MHZ system (Special)
BL2016-244	Authorizes an agreement with the Trust for Public Land to implement the Nashville Climate Smart Cities Program (Special)
BL2016-245	Authorizes Viridian Condominium Association to install, construct and maintain underground encroachments (Special)
BL2016-246	Abandons easement rights (Special)
BL2016-247	Abandons easement rights (Special)
BL2016-248	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2016-249	Authorizes acquisition of permanent and temporary easements through negotiation, condemnation, or fee simple take (Special)
BL2016-250	Approves sublease agreement (Special)
Amdt. 1	Replaces Exhibit 1 of Ord. BL2016-250 (Special)
BL2016-251	Authorizes Nashcam, L.P. to install, construct and maintain underground encroachments (Special)
BL2016-252	Adopts capital improvements budget 2016—2017 through 2021—2022 (Special)
BL2016-253	Authorizes NP 5th, LLC, to install, construct and maintain underground and aerial encroachments (Special)
BL2016-254	Authorizes director of public property to execute a quitclaim deed (Special)
BL2016-255	(Withdrawn)
BL2016-256	(Withdrawn)
BL2016-257	Amends §§ 6.28.030.R.6., 16.04.110 (6.28, 16.04)
Amdt. 1	Amends § 2 of Ord. BL2016-257 (6.28)
BL2016-258	Authorizes the director of public property administration to execute the agreement and convey the metropolitan government's interest in the property to MDHA for further conveyance to TEA (Special)
BL2016-259	Requires the metropolitan transit authority, in conjunction with any other related entities, provide to the metropolitan council, no later than December 31, 2016, a comprehensive mass transit plan (Special)
BL2016-260	Amends §§ 1.01.010—1.01.050 (1.01)
BL2016-261	Abandons an existing sewer main and easement and accepts one new sewer manhole assembly and easement (Special)
BL2016-262	Abandons existing sewer main and easement and accepts new sewer main and easement (Special)
BL2016-263	Abandons easement rights (Special)
BL2016-264	Authorizes participation agreement between the county, acting by and through the department of water and sewerage services, and Nelson to improve public water services (Special)
BL2016-265	(Withdrawn)
BL2016-266	Amends §§ 17.40.106.I., 17.40.120.H.5. (17.40)
BL2016-267	Amends §§ 17.08.030, 17.16.070.I. (17.08, 17.16)
BL2016-268	(Withdrawn)
BL2016-269	Amends official zoning map (Special)
BL2016-270	Amends official zoning map (Special)
BL2016-271	Amends official zoning map (Special)
BL2016-272	Amends official zoning map (Special)
BL2016-273	Amends official zoning map (Special)
BL2016-274	Amends official zoning map (Special)
BL2016-275	Amends official zoning map (Special)
BL2016-276	Amends official zoning map (Special)
BL2016-277	Amends official zoning map (Special)
BL2016-278	Amends official zoning map (Special)
Amdt. 1	Amends §§ 4 and 7 of Ord. BL2016-278 (Special)
BL2016-279	Amends official zoning map (Special)
BL2016-280	Amends official zoning map (Special)
BL2016-281	Amends official zoning map (Special)
BL2016-282	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2016-282 (Special)
BL2016-283	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2016-284	Amends official zoning map (Special)
BL2016-285	(Withdrawn)
BL2016-286	Amends official zoning map (Special)
BL2016-287	Amends official zoning map (Special)
BL2016-288	Amends official zoning map (Special)
BL2016-289	Amends official zoning map (Special)
BL2016-290	Amends official zoning map (Special)
BL2016-291	Amends official zoning map (Special)
BL2016-292	Amends official zoning map (Special)
BL2016-293	(Withdrawn)
BL2016-294	Amends official zoning map (Special)
BL2016-295	Amends official zoning map (Special)
BL2016-296	Amends official zoning map (Special)
BL2016-297	(Withdrawn)
BL2016-298	Amends official zoning map (Special)
BL2016-299	Amends official zoning map (Special)
BL2016-300	Amends official zoning map (Special)
BL2016-301	Approves agreement between the Nashville Fire Department and Vanderbilt University Medical Center (Special)
BL2016-302	Grants a franchise to TN Backhaul Networks, LLC (Special)
Amdt. 1	Amends § 2, adds new § 4 and renumbers existing § 4 as § 5 of Ord. BL2016-302 (Special)
Amdt. 2	Amends § 1 of Ord. BL2016-302 (Special)
BL2016-303	Abandons sewer main and easement (Special)
BL2016-304	Amends official zoning map (Special)
BL2016-305	Amends official zoning map (Special)
BL2016-306	Amends official zoning map (Special)
BL2016-307	(Reserved)
BL2016-308	(Withdrawn)
BL2016-309	Amends §§ 6.28.030.E., 17.04.060, 17.16.250.D.3., 17.32.010—17.32.160, 17.36.120.C.2.d. (6.28, 17.04, 17.16, 17.32, 17.36)
Amdt. 1	Amends §§ 4 and 5 of Ord. BL2016-309 (17.32, 17.36)
BL2016-310	Amends § 6.26.030.B.5. (6.26)
BL2016-311	Amends § 2.56.420 (2.56)
BL2016-312	Requires Metropolitan Council approval by resolution of the location of the Sheriff's new administrative offices facility prior to the disbursement of general obligation bond funds, commercial paper, or any other funding toward this project (Special)
Amdt. 1	Amends § 1 of Ord. BL2016-312 (Special)
BL2016-313	Approves license agreement (Special)
BL2016-314	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-315	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-316	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-317	Abandons and accepts sewer main, water mains, manhole assemblies and easements (Special)
BL2016-318	Amends official zoning map (Special)
BL2016-319	Amends official zoning map (Special)
BL2016-320	Amends official zoning map (Special)
BL2016-321	Amends official zoning map (Special)
BL2016-322	Amends official zoning map (Special)
BL2016-323	Amends official zoning map (Special)
BL2016-324	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2016-324 (Special)
BL2016-325	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3 and 4 of Ord. BL2016-325 (Special)
Amdt. 2	Amends §§ 3 and 4 of Ord. BL2016-325 (Special)
BL2016-326	Amends official zoning map (Special)
BL2016-327	Amends § 17.08.030; adds § 17.16.090.A.; renumbers § 17.16.090.A.—H. as B.—I. (17.08, 17.16)
BL2016-328	Amends § 3.08.180.B., C. (3.08)
BL2016-329	Amends §§ 6.72.030, 6.72.035, 6.72.040, 6.72.070, 6.72.090, 6.72.100, 6.72.110, 6.72.130, 6.72.135, 6.72.140, 6.72.150, 6.72.155, 6.72.160, 6.72.165, 6.72.175, 6.72.180, 6.72.185, 6.72.210, 6.72.2230, 6.72.240, 6.72.245, 6.72.250, 6.72.270, 6.72.290, 6.72.415, 6.72.425, 6.72.430, 6.72.440; adds § 6.72.445 (6.72)
BL2016-330	Amends § 7.08.090.A.1.; repeals § 7.08.090.F.; renumbers § 7.08.090.G.—I. as F.—H. (7.08)
BL2016-331	Amends §§ 15.34.030.C., 15.34.040.B., C. (15.34)
Amdt. 1	Amends § 1 of Ord. BL2016-331 (15.34)
BL2016-332	Approves agreement for the lease and restoration of Steam Locomotive Number 576 (Special)
BL2016-333	Accepts donation (Special)
BL2016-334	Amends Ord. BL2015-1281 (Special)
Amdt. 1	Amends fourth recital paragraph, §§ 2 and 3, adds new § 5 and renumbers the remaining sections accordingly of Ord. BL2016-334 (Special)
BL2016-335	(Withdrawn)
BL2016-336	(Withdrawn)
BL2016-337	Abandons and accepts sewer main (Special)
BL2016-338	Abandons and accepts sewer main (Special)
BL2016-339	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-340	Amends official zoning map (Special)
BL2016-341	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2016-342	Adds §§ 2.213.010—2.213.100 (2.213)
Amdt. 1	Amends § 1 of Ord. BL2016-342 (2.213)
Amdt. 2	Amends § 1 of Ord. BL2016-342 (2.213)
BL2016-343	Adds §§ 13.18.010, 13.18.020 (13.18)
Amdt. 1	Amends § 1 of Ord. BL2016-343 (13.18)
Amdt. 2	Renumbers § 2 as § 3 and adds new § 2 of Ord. BL2016-343 (Special)
Amdt. 3	Amends § 1 of Ord. BL2016-343 (13.18)
BL2016-344	Authorizes issuance of permit allowing the United States Government to land and take off aircraft on The Green in conjunction with Marine Week (Special)
BL2016-345	Abandons and accepts water main and hydrants (Special)
BL2016-346	Abandons and accepts sewer main and easement (Special)
BL2016-347	Abandons and accepts sewer main and manholes (Special)
BL2016-348	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-349	Adds § 17.40.720.B,; renumbers § 17.40.720.B. as C. (17.40)
BL2016-350	(Withdrawn)
BL2016-351	Amends official zoning map (Special)
BL2016-352	Amends official zoning map (Special)
BL2016-353	Amends official zoning map (Special)
BL2016-354	Amends official zoning map (Special)
BL2016-355	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2016-355 (Special)
BL2016-356	Amends official zoning map (Special)
BL2016-357	(Withdrawn)
BL2016-358	(Withdrawn)
BL2016-359	Amends official zoning map (Special)
BL2016-360	Amends official zoning map (Special)
BL2016-361	Amends official zoning map (Special)
BL2016-362	Amends official zoning map (Special)
BL2016-363	Amends official zoning map (Special)
BL2016-364	Amends official zoning map (Special)
BL2016-365	Amends official zoning map (Special)
BL2016-366	Amends official zoning map (Special)
BL2016-367	Amends official zoning map (Special)
BL2016-368	Amends official zoning map (Special)
BL2016-369	Amends official zoning map (Special)
BL2016-370	Amends official zoning map (Special)
BL2016-371	Amends official zoning map (Special)
Amdt. 1	Adds § 4 and renumbers the remaining sections accordingly of Ord. BL2016-371 (Special)
BL2016-372	Amends official zoning map (Special)
BL2016-373	Amends § 6.28.030.C. (6.28)
Amdt. 1	Amends § 1 of Ord. BL2016-373 (6.28)
BL2016-374	Amends § 6.28.030.D. (6.28)
BL2016-375	(Withdrawn)
BL2016-376	(Withdrawn)
BL2016-377	(Withdrawn)
BL2016-378	Adds § 11.32.030 (11.32)
BL2016-379	Amends § 17.04.060 (17.04)
BL2016-380	Authorizes acquisition of easement (Special)
BL2016-381	Amends § 6.28.030 (6.28)
Amdt. 1	Amends §§ 1, 3, 6, 7, 8 and 9 of Ord. BL2016-381 (6.28)
BL2016-382	(Withdrawn)
BL2016-383	Amends § 7.08.010 (7.08)
BL2016-384	Amends §§ 6.64.020, 6.64.160; repeals § 10.60.080 (6.64, 10.60)
BL2016-385	Requires council members and elected officials complete a sexual harassment awareness and prevention training seminar (Special)
BL2016-386	Designates honorary street name (Special)
BL2016-387	Approves contract with United Way (Special)
BL2016-388	Approves conveyance of property and payments in lieu of ad valorem taxes (Special)
Amdt. 1	Replaces Exhibit C and adds new sections to Ord. BL2016-388 (Special)
BL2016-389	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-390	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-391	Amends official zoning map (Special)
RS2016-391	Amends §§ 2, 3, 5, 7 of Ord. BL2016-235, §§ 2.62.040.F., 12.56.170, 13.20.030.F., G. (2.62, 12.56, 13.20)
BL2016-392	(Withdrawn)
BL2016-393	Amends official zoning map (Special)
BL2016-394	(Withdrawn)
BL2016-395	Amends official zoning map (Special)
BL2016-396	Amends official zoning map (Special)
BL2016-397	Amends official zoning map (Special)
BL2016-398	Amends official zoning map (Special)
BL2016-399	Amends official zoning map (Special)
BL2016-400	Amends official zoning map (Special)
BL2016-401	Amends official zoning map (Special)
BL2016-402	Amends official zoning map (Special)
BL2016-403	Amends official zoning map (Special)
BL2016-404	Amends official zoning map (Special)
BL2016-405	Amends official zoning map (Special)
BL2016-406	Amends official zoning map (Special)
BL2016-407	Amends official zoning map (Special)
BL2016-408	Amends official zoning map (Special)
BL2016-409	Amends official zoning map (Special)
BL2016-410	Amends official zoning map (Special)
BL2016-411	Amends official zoning map (Special)
BL2016-412	(Withdrawn)
BL2016-413	Amends official zoning map (Special)
BL2016-414	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2016-415	Amends §§ 6.26.350, 17.04.060, 17.08.030, 17.16.080, 17.16.180, 17.40.520, 17.40.750; adds § 17.40.340.C. (6.26, 17.04, 17.08, 17.16, 17.40)
BL2016-416	Adds § 2.190.010 (2.190)
BL2016-417	Amends § 12.40.150 (12.40)
BL2016-418	(Failed)
BL2016-419	Requires council members and elected officials complete a diversity training seminar (Special)
BL2016-420	Approves first amendment to the license and lease agreement between the metropolitan government and Nashville Hockey Club Limited Partnership (Special)
BL2016-421	Approves agreement for the acquisition and disposition of property (Special)
BL2016-422	Approves agreement for the continued lease of property (Special)
BL2016-423	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2016-424	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2016-425	Abandons and accepts sewer main (Special)
BL2016-426	Abandons and accepts sewer main, water main, easements (Special)
BL2016-427	Abandons and accepts water main (Special)
BL2016-428	Amends official zoning map (Special)
BL2016-429	Amends official zoning map (Special)
BL2016-430	Authorizes participation agreement (Special)
BL2016-431	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-432	Grants a franchise to Extenet Systems, Inc. (Special)
BL2016-433	Approved the assignment or transfer of franchise rights (Special)
BL2016-434	Amends §§ 1.01.010—1.01.050 (1.01)
BL2016-435	Amends Ord. BL2016-334 (Special)
BL2016-436	Amends official zoning map (Special)
BL2016-437	Amends official zoning map (Special)
BL2016-438	Amends official zoning map (Special)
BL2016-439	Amends official zoning map (Special)
BL2016-440	Amends official zoning map (Special)
BL2016-441	Amends official zoning map (Special)
BL2016-442	Amends official zoning map (Special)
BL2016-443	Amends official zoning map (Special)
BL2016-444	Amends official zoning map (Special)
BL2016-445	Amends official zoning map (Special)
BL2016-446	Amends official zoning map (Special)
BL2016-447	Amends official zoning map (Special)
BL2016-448	Amends official zoning map (Special)
BL2016-449	(Withdrawn)
BL2016-450	Amends official zoning map (Special)
BL2016-451	Amends official zoning map (Special)
BL2016-452	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2016-452 (Special)
BL2016-453	(Reserved)
BL2016-454	Amends § 7.08.090.E. (7.08)
BL2016-455	Extends the boundaries of the Urban Services District (Special)
Amdt. 1	Amends §§ 1, 3, and Exhibit A of Ord. BL2016-455 (Special)
BL2016-456	Authorizes the acceptance of property (Special)
BL2016-457	Abandons and accepts sewer and water mains (Special)
BL2016-458	Approves amendment one to the ground lease for Rose Park (Special)
BL2016-459	Approves a revocable license agreement between the metropolitan government and Operation Stand Down Tennessee (Special)
BL2016-460	Amends official zoning map (Special)
BL2016-461	(Withdrawn)
BL2016-462	Amends § 2.190.010.A. (2.190)
BL2016-463	Adds § 16.24.330.R. (16.24)
BL2016-464	Approves a contract with Nature's Best Organics of Tennessee, LLC (Special)
BL2016-465	Abandons and accepts sewer main and easements (Special)
BL2016-466	Abandons and accepts sewer and water mains and easements (Special)
BL2016-467	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-468	Abandons and acquires easement rights (Special)
BL2016-469	Authorizes the installation, construction, and maintenance of underground encroachments (Special)
BL2016-470	Amends official zoning map (Special)
BL2016-471	Amends official zoning map (Special)
BL2016-472	Amends official zoning map (Special)
BL2016-473	Amends official zoning map (Special)
BL2016-474	Amends official zoning map (Special)
BL2016-475	Amends official zoning map (Special)
BL2016-476	Amends official zoning map (Special)
BL2016-477	Amends official zoning map (Special)
BL2016-478	Amends official zoning map (Special)
BL2016-479	Amends official zoning map (Special)
BL2016-480	Amends official zoning map (Special)
BL2016-481	Amends official zoning map (Special)
BL2016-482	Amends official zoning map (Special)
BL2016-483	Amends § 2.44.115 (2.44)
BL2016-484	Requires local approval of landfills, solid waste disposal facilities and solid waste processing facilities prior to the construction of such facilities (Special)

Ordinance Number	Disposition
BL2016-485	Abandons and accepts water main and easements (Special)
BL2016-486	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-487	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2016-487 (Special)
BL2016-488	Amends official zoning map (Special)
BL2016-489	Amends official zoning map (Special)
BL2016-490	Amends official zoning map (Special)
BL2016-491	(Withdrawn)
BL2016-492	Repeals § 6.28.030; amends §§ 17.04.060, 17.16.250.E. (6.28, 17.04, 17.16)
Amdt. 1	Amends §§ 2 and 5 of Ord. BL2016-492 (17.04, 17.16)
BL2016-493	Amends §§ 17.04.060, 17.20.060.H., 17.20.120, 17.20.125, 17.40.340.B. (17.04, 17.20, 17.40)
BL2016-494	Establishes a program for the purpose of providing assistance to low-income elderly residents for the fiscal year 2016-2017 (Special)
BL2016-495	(Withdrawn)
BL2016-496	Adds § 12.40.040.F. (12.40)
Amdt. 1	Amends § 1 of Ord. BL2016-496 (12.40)
BL2016-497	Adds § 12.40.095 (12.40)
BL2016-498	(Withdrawn)
BL2016-499	Grants temporary and permanent easements (Special)
BL2016-500	Authorizes acquisition of easements and property rights by negotiation or condemnation (Special)
BL2016-501	Authorizes acquisition of easements and property rights by negotiation or condemnation (Special)
BL2016-502	Authorizes acquisition of easements and property rights by negotiation or condemnation (Special)
BL2016-503	Authorizes acquisition of easements and property rights by negotiation or condemnation (Special)
BL2016-504	Authorizes acquisition of easements and property rights by negotiation or condemnation (Special)
BL2016-505	Authorizes acquisition of easements and property rights by negotiation or condemnation (Special)
BL2016-506	Authorizes acquisition of easements and property rights by negotiation or condemnation (Special)
BL2016-507	Authorizes acquisition of easements and property rights by negotiation or condemnation (Special)
BL2016-508	Authorizes acquisition of easements and property rights by negotiation or condemnation (Special)
BL2016-509	Abandons portion of sewer easement (Special)
BL2016-510	Abandons easement rights (Special)
BL2016-511	Abandons easement rights (Special)
BL2016-512	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2016-513	Amends §§ 15.64.010, 15.64.015, 15.64.020; repeals § 15.64.030; amends §§ 15.64.032, 15.64.034, 15.64.080, 15.64.100, 15.64.110, 15.64.130, 15.64.140, 15.64.150, 15.64.160, 15.64.180; repeals § 15.64.195; amends §§ 15.64.205, 15.64.215, 15.64.220, 17.28.040, 17.36.210, 17.36.220 (15.64, 17.28, 17.36)
BL2016-514	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2016-514 (Special)
BL2016-515	Amends official zoning map (Special)
BL2016-516	Amends official zoning map (Special)
BL2016-517	Amends official zoning map (Special)
BL2016-518	Amends official zoning map (Special)
BL2016-519	Amends official zoning map (Special)
BL2016-520	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2016-520 (Special)
Amdt. 2	Amends §§ 1, 4, and 7 of Ord. BL2016-520 (Special)
BL2016-521	Amends official zoning map (Special)
BL2016-522	Amends official zoning map (Special)
BL2016-523	Amends official zoning map (Special)
BL2016-524	Amends § 2.24.250.C.1. (2.24)
Amdt. 1	Amends § 1 of Ord. BL2016-524 (2.24)
BL2016-525	(Withdrawn)
BL2016-526	Amends § 4.48.030.B. (4.48)
BL2016-527	(Withdrawn)
BL2016-528	Amends § 8.20.050 (8.20)
BL2016-529	Approves removal plan for certain buildings and structures (Special)
BL2016-530	Authorizes R.C. Mathews Contractor, LLC, to install, construct and maintain underground and structural encroachments (Special)
BL2016-531	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-532	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-533	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-534	Authorizes acquisition of easements and property rights by negotiation or condemnation (Special)

Ordinance Number	Disposition
BL2016-535	Amends the geographic information systems street and alley centerline layer (Special)
BL2016-536	Amends official zoning map (Special)
BL2016-537	Amends official zoning map (Special)
BL2016-538	Amends official zoning map (Special)
BL2016-539	Amends official zoning map (Special)
BL2016-540	Repeals, in part, Ordinance No. BL2014-688 and Ordinance No. BL2015-1283, as amended (Special)
BL2017-541	Amends § 2.20.130.F. (2.20)
BL2017-542	Adds § 4.12.240 (4.12)
BL2017-543	Amends official zoning map (Special)
BL2017-544	Amends official zoning map (Special)
BL2017-545	Amends official zoning map (Special)
BL2017-546	Amends official zoning map (Special)
BL2017-547	Amends official zoning map (Special)
BL2017-548	Amends official zoning map (Special)
BL2017-549	(Withdrawn)
BL2017-550	Amends official zoning map (Special)
BL2017-551	Amends official zoning map (Special)
BL2017-552	Amends official zoning map (Special)
BL2017-553	Amends official zoning map (Special)
BL2017-554	Amends official zoning map (Special)
BL2017-555	Amends official zoning map (Special)
BL2017-556	Amends official zoning map (Special)
BL2017-557	(Withdrawn)
BL2017-558	Amends official zoning map (Special)
BL2017-559	(Withdrawn)
BL2017-560	Amends §§ 2.222.010(2)(o), 2.222.030.C.4. (2.222)
BL2017-561	Amends § 12.40.040.A.1. (12.40)
BL2017-562	Approves amendment to lease agreement (Special)
BL2017-563	Adopts the revised Flood Insurance Rate Map (Special)
BL2017-564	Authorizes acceptance of donation (Special)
BL2017-565	Approves participation agreement (Special)
BL2017-566	Abandons and accepts sewer main and easements (Special)
BL2017-567	Abandons public utility easement (Special)
BL2017-568	Abandons and accepts sewer main and easements (Special)
BL2017-569	Abandons and accepts sewer main and easements (Special)
BL2017-570	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2017-571	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2017-572	Adopts the geographic information systems street and alley centerline layer, with the recordation of renaming, additions and deletions of acceptances and abandonments as reflected on the centerline layer to date (Special)
BL2017-573	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-574	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-575	Amends official zoning map (Special)
BL2017-576	Amends official zoning map (Special)
BL2017-577	Amends official zoning map (Special)
BL2017-578	Amends official zoning map (Special)
BL2017-579	Amends official zoning map (Special)
BL2017-580	Amends §§ 2.177.010—2.177.090 (2.177)
BL2017-581	Adds § 2.24.300.H.—L. (2.24)
Amdt. 1	Amends § 1 of Ord. BL2017-581 (2.24)
BL2017-582	Amends § 2.24.210 (2.24)
BL2017-583	Amends § 5.12.060.A.(4) (5.12)
BL2017-584	Amends § 7.04.050.A., Ch. 7.08 (title), §§ 7.08.010, 7.08.130.B., 7.12.010, 7.16.010, 7.16.020.B., Ch. 7.20 (title) (7.04, 7.08, 7.12, 7.16, 7.20)
BL2017-585	Amends §§ 8.12.030, 8.20.040 (8.12, 8.20)
Amdt. 1	Amends §§ 1 and 2 of Ord. BL2017-585 (8.12, 8.20)
BL2017-586	Amends Ch. 8.20 (title), §§ 8.20.050, 8.20.060.A., 8.20.120, 8.20.170 (8.20)
Amdt. 1	Deletes §§ 4, 5, and 7 of Ord. BL2017-586 (8.20)
BL2017-587	(Withdrawn)
BL2017-588	Amends § 15.64.032 (15.64)
BL2017-589	Authorizes the Industrial Development Board to negotiate and accept payments in lieu of certain additional ad valorem taxes (Special)
BL2017-590	Authorizes the acquisition of real property by negotiation or condemnation (Special)
Amdt. 1	Amends § 2 of Ord. BL2017-590 (Special)
BL2017-591	Abandons and accepts sewer and water mains, sanitary manholes, and easements (Special)
BL2017-592	Authorizes HRT of Tennessee, Inc. to install, construct and maintain underground encroachments (Special)
BL2017-593	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-594	Amends official zoning map (Special)
BL2017-595	Amends official zoning map (Special)
BL2017-596	Amends official zoning map (Special)
BL2017-597	Amends official zoning map (Special)
BL2017-598	Amends official zoning map (Special)
BL2017-599	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2017-600	Amends official zoning map (Special)
BL2017-601	Amends official zoning map (Special)
BL2017-602	Amends official zoning map (Special)
BL2017-603	Amends official zoning map (Special)
Amdt. 1	Adds § 3 and renumbers the remaining sections accordingly of Ord. BL2017-603 (Special)
BL2017-604	Amends official zoning map (Special)
BL2017-605	(Reserved)
BL2017-606	Amends official zoning map (Special)
BL2017-607	Amends official zoning map (Special)
BL2017-608	Amends §§ 17.04.060, 17.08.030, 17.16.250.E., 17.16.070 (17.04, 17.08, 17.16)
Amdt. 1	Amends § 8 of Ord. BL2017-608 (Special)
Amdt. 2	Amends § 7 of Ord. BL2017-608 (17.16)
Amdt. 3	Amends § 10 of Ord. BL2017-608 (Special)
Amdt. 4	Amends § 7 of Ord. BL2017-608 (17.16)
Amdt. 5	Amends §§ 6, 7 of Ord. BL2017-608 (17.16)
Amdt. 6	Amends § 7 of Ord. BL2017-608 (17.16)
Amdt. 7	Amends § 1 of Ord. BL2017-608 (17.04)
Amdt. 8	Amends §§ 1, 6, 7 of Ord. BL2017-608 (17.04, 17.16)
Amdt. 9	Amends § 6 of Ord. BL2017-608 (17.16)
BL2017-609	(Withdrawn)
BL2017-610	(Withdrawn)
BL2017-611	(Withdrawn)
BL2017-612	Amends §§ 2.24.146, 2.68.020 (2.24, 2.68)
BL2017-613	Abandons and accepts water and sewer mains, sanitary sewer manholes, and any associated easements (Special)
BL2017-614	Abandons existing water main, a fire hydrant and easement and accepts new fire hydrants for six properties located along 9th Avenue North (Special)
BL2017-615	Abandons existing sanitary sewer main and a manhole unit and accepts new sanitary sewer main and manholes (Special)
BL2017-616	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-617	Repeals Ord. BL2016-258 (Special)
BL2017-618	Abandons existing easement rights (Special)
BL2017-619	Abandons existing easement rights (Special)
BL2017-620	Abandons existing water and sanitary sewer mains and easements and accepts new water and sanitary sewer mains, manholes, a fire hydrant and any associated easements (Special)
BL2017-621	Abandons existing water lines and easements and accepts new water lines, fire hydrants and any associated easements (Special)
BL2017-622	Abandons existing water main and easement and accepts a new water main, fire hydrant and easement (Special)
BL2017-623	Abandons existing water line and accepts new water line, sanitary sewer main, sanitary sewer manholes, fire hydrants and any associated easements (Special)
BL2017-624	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-625	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-626	Amends § 16.04.110.A. (16.04)
Amdt. 1	Amends § 1 of Ord. BL2017-626 (16.04)
BL2017-627	Amends official zoning map (Special)
BL2017-628	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2017-628 (Special)
BL2017-629	Amends official zoning map (Special)
BL2017-630	Amends official zoning map (Special)
BL2017-631	Amends official zoning map (Special)
BL2017-632	Amends official zoning map (Special)
BL2017-633	Amends official zoning map (Special)
BL2017-634	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2017-634 (Special)
BL2017-635	Amends official zoning map (Special)
BL2017-636	Amends official zoning map (Special)
BL2017-637	Amends official zoning map (Special)
BL2017-638	Amends official zoning map (Special)
BL2017-639	Amends official zoning map (Special)
BL2017-640	Amends official zoning map (Special)
BL2017-641	Amends official zoning map (Special)
BL2017-642	Amends official zoning map (Special)
BL2017-643	Amends § 2.210.020.A. (2.210)
BL2017-644	(Withdrawn)
BL2017-645	Amends § 12.54.210 (12.54)
Amdt. 1	Amends § 1 of Ord. BL2017-645 (12.54)
BL2017-646	Adds § 13.08.080 (13.08)
Amdt. 1	Amends § 1 of Ord. BL2017-646 (13.08)
Amdt. 2	Amends § 1 of Ord. BL2017-646 (13.08)
BL2017-647	(Reserved)
BL2017-648	Authorizes 21C Nashville Master Tenant LLC to install, construct and maintain underground and aerial encroachments (Special)
BL2017-649	Abandons existing sewer main and any associated easements (Special)
BL2017-650	Abandons existing water main and accepts new water main and a fire hydrant (Special)
BL2017-651	Approves participation agreement with Centurion Products, Inc. (Special)
BL2017-652	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-653	Amends § 17.16.250.E.2.b.iv. (17.16)

Ordinance Number	Disposition
BL2017-654	Amends §§ 2.28.130, 6.04.080, 7.08.010, 7.08.040, 7.08.090, 7.08.105, 7.16.110, 10.48.010, 11.28.120, 12.48.020, 17.04.060, 17.20.030 (2.28, 6.04, 7.08, 7.16, 10.48, 11.28, 12.48, 17.04, 17.20)
BL2017-655	Amends official zoning map (Special)
Amdt. 1	Amends §§ 1 and 4 of Ord. BL2017-655 (Special)
BL2017-656	Names bridge (Special)
BL2017-657	Adds § 2.140.070 (2.140)
BL2017-658	Adds §§ 6.32.050—6.32.090 (6.32)
Amdt. 1	Amends § 1 of Ord. BL2017-658 (6.32)
BL2017-659	Amends § 12.04.015 (12.04)
BL2017-660	Approves participation agreement with LVH2, LLC (Special)
BL2017-661	Approves participation and maintenance agreement with Davenport Downs Holding, LLC (Special)
BL2017-662	Approves amendment to lease agreement authorized by Ord. BL2007-1544 (Special)
BL2017-663	Abandons existing combined sewer mains and easements and accepts new combined sewer mains, manholes and any associated easements (Special)
BL2017-664	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-665	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-666	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-667	Amends official zoning map (Special)
BL2017-668	Amends official zoning map (Special)
BL2017-669	Amends official zoning map (Special)
BL2017-670	Amends official zoning map (Special)
BL2017-671	Amends official zoning map (Special)
BL2017-672	Amends official zoning map (Special)
BL2017-673	(Failed)
BL2017-674	Amends official zoning map (Special)
BL2017-675	Amends official zoning map (Special)
BL2017-676	Amends official zoning map (Special)
BL2017-677	Amends official zoning map (Special)
BL2017-678	Amends official zoning map (Special)
BL2017-679	Amends official zoning map (Special)
BL2017-680	Amends official zoning map (Special)
BL2017-681	Amends official zoning map (Special)
BL2017-682	Amends official zoning map (Special)
BL2017-683	(Withdrawn)
BL2017-684	Amends Table 17.12.020A (17.12)
BL2017-685	(Withdrawn)
BL2017-686	(Withdrawn)
BL2017-687	(Withdrawn)
BL2017-688	Amends § 16.04.200.A. (16.04)
Amdt. 1	Amends § 1 of Ord. BL2017-688 (16.04)
BL2017-689	Approves lease agreement (Special)
BL2017-690	Approves agreement with Bellevue Redevelopment Associates, LP (Special)
BL2017-691	(Withdrawn)
BL2017-692	Abandons easement rights (Special)
BL2017-693	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2017-694	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-695	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-696	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-697	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-698	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-699	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-700	Amends official zoning map (Special)
BL2017-701	Amends official zoning map (Special)
BL2017-702	Amends official zoning map (Special)
BL2017-703	Amends official zoning map (Special)
BL2017-704	(Withdrawn)
BL2017-705	(Withdrawn)
BL2017-706	(Withdrawn)
BL2017-707	(Withdrawn)
BL2017-708	Amends § 2.140.050 (2.140)
Amdt. 1	Replaces Exhibit A of Ord. BL2017-708 (Special)
BL2017-709	Approves contract (Special)
BL2017-710	Authorizes contract for long-term solid waste management plan (Special)
BL2017-711	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights by negotiation or condemnation (Special)
BL2017-712	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights by negotiation or condemnation (Special)
BL2017-713	Abandons existing sanitary sewer and water mains and easements and accepts new sanitary sewer main, manholes and easements (Special)
BL2017-714	Abandons existing combination sewer main and any associated easements and accepts a new sanitary sewer manhole, fire hydrants and any associated easements (Special)
BL2017-715	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)

Ordinance Number	Disposition
BL2017-716	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2017-717	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-718	Authorizes Drury Nashville, LLC to install, construct and maintain underground and aerial encroachments (Special)
BL2017-719	(Failed)
BL2017-720	(Withdrawn)
BL2017-721	Amends § 17.20.140 (17.20)
BL2017-722	Budget ordinance for fiscal year 2018 (Special)
Amdts. 1—12	Amends Ord. BL2017-722 (Special)
BL2017-723	Establishes tax levy in the General Services District for 2017—2018 (Special)
BL2017-724	Establishes a program for the purpose of providing assistance to low-income elderly residents for the fiscal year 2017-2018 (Special)
BL2017-725	Amends Ch. 2.154 (title), §§ 2.154.010, 2.154.030; adds §§ 2.154.015, 2.154.040—2.154.060 (2.154)
BL2017-726	Adds § 5.04.105 (5.04)
BL2017-727	Amends § 6.72.170 (6.72)
BL2017-728	Amends §§ 6.81.020, 6.81.080, 6.81.170 (6.81)
BL2017-729	Approves amendment to agreement authorized by Ord. BL2015-1308 (Special)
BL2017-730	Authorizes agreement with Clover Glen (Special)
BL2017-731	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights by negotiation or condemnation (Special)
BL2017-732	Abandons existing sanitary sewer main, sanitary sewer manholes and easements and accepts a new sanitary sewer manhole and any associated easements (Special)
BL2017-733	Amends §§ 1.01.010—1.01.050 (1.01)
BL2017-734	Amends official zoning map (Special)
BL2017-735	Creates the positions of Accountant Chief - Assistant, Associate Administrator - Police & Fire, Budget Officer - Assistant, Deputy Director, Equipment Operator Specialist, Mechanic Apprentice, Metropolitan Treasurer - Assistant, Park Police Trainee, Public Property Officer - Assistant, Purchasing Agent - Assistant, Utility Account Specialist 1, Utility Account Specialist 2, Utility Account Specialist 3, Utility Compliance Inspector 1, Utility Compliance Inspector 2, Utility Compliance Inspector 3, Utility Data Technician 1, Utility Data Technician 2, Utility Data Technician 3, Utility Engineering Technician, Utility Engineering Technician Senior, Utility Environmental Compliance Officer 1, Utility Environmental Compliance Officer 2, Utility Environmental Compliance Officer 3, Utility Equipment Operator, Utility Equipment Operator Senior, Utility Equipment Operator Specialist, Utility Field Specialist, Utility Field Technician 1, Utility Field Technician 2, Utility Field Technician 3, Utility Maintenance Specialist 1, Utility Maintenance Specialist 2, Utility Maintenance Specialist 3, Utility Maintenance Supervisor 1, Utility Maintenance Supervisor 2, Utility Maintenance Technician, Utility Maintenance Technician Senior, Utility Services Assistant Manager, Utility Services Manager, Utility Services Superintendent, Utility Supervisor, Utility Technical Specialist 1, Utility Technical Specialist 2, Utility Technician, Utility Technician Specialist 1, Utility Technician Specialist 2, Utility Technician Specialist 3, Utility Technician Specialist 4, Utility Treatment Plant Technician 1, Utility Treatment Plant Technician 2, Utility Treatment Plant Technician 3, Utility Water Quality Analyst 1, Utility Water Quality Analyst 2, Utility Water Quality Analyst 3, and Veterans Service Officer Senior (Special)
BL2017-736	Adopts capital improvements budget and program 2017—2018 through 2022—2023 (Special)
BL2017-737	Amends §§ 6.74.010, 6.74.020 (6.74)
Amdt. 1	Amends § 2 of Ord. BL2017-737 (6.74)
Amdt. 2	Amends § 3 of Ord. BL2017-737 (Special)
BL2017-738	Adds § 6.28.040 (6.28)
BL2017-739	(Withdrawn)
BL2017-740	Amends § 12.52.080 (12.52)

Ordinance Number	Disposition
BL2017-741	Amends § 13.40.040.G. (13.40)
Amdt. 1	Amends §§ 1 and 2 of Ord. BL2017-741 (13.40)
BL2017-742	Approves the plans for a Construction and Demolition solid waste processing facility (Special)
Amdt. 1	Amends first recital clause of Ord. BL2017-742 (Special)
BL2017-743	(Withdrawn)
BL2017-744	Approves parking agreement (Special)
BL2017-745	Authorizes Family and Children's Services, Inc. to install, construct and maintain an underground encroachment (Special)
BL2017-746	Approves participation agreement with Century Farms LLC (Special)
Amdt. 1	Amends first, fourth and fifth recital clause of Ord. BL2017-746 (Special)
BL2017-747	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights by negotiation or condemnation (Special)
BL2017-748	Approves lease agreement (Special)
BL2017-749	Authorizes North Gulch Apartments, LLC, to install, construct and maintain underground encroachments (Special)
BL2017-750	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-751	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-752	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-753	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-754	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-755	Abandons existing easement rights for former Alley No. 1078 (Special)
BL2017-756	Amends official zoning map (Special)
BL2017-757	Amends official zoning map (Special)
BL2017-758	(Withdrawn)
BL2017-759	Amends official zoning map (Special)
BL2017-760	Amends official zoning map (Special)
BL2017-761	Amends official zoning map (Special)
BL2017-762	Amends official zoning map (Special)
BL2017-763	Amends official zoning map (Special)
BL2017-764	Amends official zoning map (Special)
BL2017-765	Amends official zoning map (Special)
BL2017-766	Amends official zoning map (Special)
BL2017-767	Amends official zoning map (Special)
BL2017-768	Amends official zoning map (Special)
BL2017-769	Amends official zoning map (Special)
BL2017-770	(Withdrawn)
BL2017-771	Amends official zoning map (Special)
BL2017-772	Amends official zoning map (Special)
BL2017-773	Amends official zoning map (Special)
BL2017-774	Amends official zoning map (Special)
BL2017-775	Amends official zoning map (Special)
BL2017-776	(Deferred indefinitely)
BL2017-777	Amends official zoning map (Special)
BL2017-778	Amends official zoning map (Special)
Amdt. 1	Amends § 7 of Ord. BL2017-778 (Special)
BL2017-779	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2017-779 (Special)
BL2017-780	Amends official zoning map (Special)
BL2017-781	Amends official zoning map (Special)
BL2017-782	Amends official zoning map (Special)
BL2017-783	Amends official zoning map (Special)
BL2017-784	(Withdrawn)
BL2017-785	Amends official zoning map (Special)
BL2017-786	Amends official zoning map (Special)
BL2017-787	Amends § 2.176.080.B. (2.176)
BL2017-788	Amends § 2.177.080.B. (2.177)
Amdt. 1	Amends second recital paragraph and § 1 of Ord. BL2017-788 (2.177)
BL2017-789	Amends § 2.20.130.A. (2.20)
BL2017-790	(Deferred indefinitely)
BL2017-791	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2017-792	Abandons existing sanitary sewer main and easements and accepts new water mains, fire hydrants, sanitary sewer mains, sanitary sewer manholes and any associated easements (Special)
BL2017-793	Abandons existing water main and easements and accepts new water main, a fire hydrant and any associated easements (Special)
BL2017-794	Abandons a portion of existing easement rights (Special)
BL2017-795	Authorizes LC Germantown LLC to install, construct and maintain underground and aerial encroachments (Special)
BL2017-796	Amends official zoning map (Special)
BL2017-797	Amends official zoning map (Special)
BL2017-798	(Failed)
BL2017-799	Amends §§ 17.08.030, 17.16.110, 17.16.210, 17.40.280 (17.08, 17.16, 17.40)
BL2017-800	(Withdrawn)
BL2017-801	Adds § 13.20.020.C. (13.20)
Amdt. 1	Amends § 1 of Ord. BL2017-801 (13.20)
BL2017-802	(Withdrawn)
BL2017-803	Abandons existing water line and accepts new water line and a fire hydrant (Special)

Ordinance Number	Disposition
BL2017-804	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights by negotiation or condemnation (Special)
BL2017-805	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights by negotiation or condemnation (Special)
BL2017-806	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights by negotiation or condemnation (Special)
BL2017-807	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights by negotiation or condemnation (Special)
BL2017-808	Approves participation agreement (Special)
BL2017-809	Amends official zoning map (Special)
BL2017-810	Amends official zoning map (Special)
BL2017-811	Amends official zoning map (Special)
BL2017-812	Amends official zoning map (Special)
BL2017-813	Amends official zoning map (Special)
BL2017-814	Amends official zoning map (Special)
BL2017-815	Amends official zoning map (Special)
BL2017-816	Amends official zoning map (Special)
BL2017-817	Amends official zoning map (Special)
BL2017-818	Amends official zoning map (Special)
BL2017-819	Amends official zoning map (Special)
BL2017-820	Amends official zoning map (Special)
BL2017-821	Amends official zoning map (Special)
BL2017-822	Amends official zoning map (Special)
BL2017-823	Amends official zoning map (Special)
BL2017-824	(Withdrawn)
BL2017-825	Amends official zoning map (Special)
BL2017-826	Amends official zoning map (Special)
BL2017-827	Amends § 17.37.010 (17.37)
BL2017-828	(Withdrawn)
BL2017-829	(Withdrawn)
BL2017-830	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights by negotiation or condemnation (Special)
BL2017-831	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2017-832	Authorizes Metropolitan Development and Housing Authority ("M.D.H.A.") to install, construct and maintain aerial and underground encroachments (Special)
BL2017-833	Adopts the 2017 Joint Assessment of Fair Housing (Special)
BL2017-834	Amends § 7.08.140.D. (7.08)
BL2017-835	Amends § 16.28.230 (16.28)
BL2017-836	Authorizes the Industrial Development Board to negotiate and accept payments in lieu of certain additional ad valorem taxes (Special)
BL2017-837	Authorizes the acquisition of property in fee simple by negotiation or condemnation (Special)
BL2017-838	Amends § 5.24.010 (5.24)
BL2017-839	Authorizes Third and Lea Partners, LLC to install, construct and maintain underground encroachments in the right-of-way located at 615 3rd Avenue South (Special)
BL2017-840	Authorizes Broadstone South Gulch, LLC to install, construct and maintain underground encroachments in the right-of-way located at 903 8th Avenue South (Special)
BL2017-841	Abandons existing easement rights for property located at 804 Sylvan Street, formerly known as Alley No. 276 (Special)
BL2017-842	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-843	Amends official zoning map (Special)
BL2017-844	Amends official zoning map (Special)
BL2017-845	Amends official zoning map (Special)
BL2017-846	Amends official zoning map (Special)
BL2017-847	Amends official zoning map (Special)
BL2017-848	Amends official zoning map (Special)
BL2017-849	Amends official zoning map (Special)
BL2017-850	Amends official zoning map (Special)
BL2017-851	Amends official zoning map (Special)
BL2017-852	Amends official zoning map (Special)
BL2017-853	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2017-853 (Special)
BL2017-854	Amends official zoning map (Special)
BL2017-855	Amends official zoning map (Special)
BL2017-856	Amends official zoning map (Special)
BL2017-857	Reserved
BL2017-858	Amends official zoning map (Special)
BL2017-859	Amends § 17.04.060 (17.04)
BL2017-860	Amends § 2.212.030.C., D.; adds §§ 2.215.010—2.215.040 (2.212, 2.215)
Amdt. 1	Amends § 1 of Ord. BL2017-860 (2.212)
BL2017-861	Amends § 4.12.060 (4.12)
BL2017-862	Authorizes ECG Belcourt, LLC to install, construct and maintain aerial and underground encroachments in the right-of-way located at 2111 Belcourt Avenue (Special)

Ordinance Number	Disposition
BL2017-863	Authorizes LMV M Tower Holdings, LLC c/o Lennar Multifamily Communities, LLC to install, construct and maintain underground and aerial encroachments in the right-of-way located at 818 19th Avenue South (Special)
BL2017-864	Authorizes Simpson Housing LLLP and Affiliates to install, construct and maintain underground encroachments in the right-of-way located at 111 17th Avenue South (Special)
BL2017-865	(Withdrawn)
BL2017-866	Amends § 7.08.130.B. (7.08)
BL2017-867	Adds §§ 10.28.010—10.28.090; renumbers § 2.88.090 as § 2.88.100; adds § 2.88.090 (2.88, 10.28)
Amdt. 1	Amends § 1 of Ord. BL2017-867 (10.28)
BL2017-868	Amends § 16.24.190 (16.24)
BL2017-869	Approves a contract by and between the Metropolitan Government of Nashville and Davidson County, acting by and through the Mayor's Office of Economic Opportunity and Empowerment, and the United Way of Metropolitan Nashville to provide one-on-one financial counseling and other financial education activities at no charge to low income residents in accordance with the Financial Empowerment Center program model (Special)
BL2017-870	Declares surplus and authorizes the conveyance of a parcel of real property located at 3410 Knight Drive (Special)
Amdt. 1	Amends Exhibit 2 of Ord. BL2017-870 (Special)
BL2017-871	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights by negotiation, donations or condemnation for use in public projects of the metropolitan government, initially for purposes of Public Works Department Project Number 2017-R-010, Central Pike Improvements (Special)
BL2017-872	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation for use in public projects of the Metropolitan Government, initially for purposes of Public Works Department Project Number 2017-R-002, Andrew Jackson Parkway Sidewalk Improvements (Special)
BL2017-873	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights, by negotiation or condemnation, for use in public projects of the metropolitan government, initially for purposes of Public Works Department Project Number 2017-R-003, Andrew Jackson Parkway Sidewalk Improvements (Special)
BL2017-874	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation, for use in public projects of the metropolitan government, initially for purposes of Public Works Department Project Number 2016-R-29, Annex Avenue Sidewalk Improvements (Special)
BL2017-875	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation for use in public projects of the metropolitan government, initially for purposes of Public Works Department Project Number 2016-R-040, John Mallette Drive Sidewalk Improvements (Special)
BL2017-876	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation for use in public projects of the metropolitan government, initially for purposes of Public Works Department Project Number 2017-R-004, Mt. View Road Sidewalk Improvements (Special)
BL2017-877	Authorizes Nashville Music Row Hotel Owner, LLC to install, construct and maintain underground encroachments in the right-of-way located at 1 Music Square West (Special)
BL2017-878	Abandons existing sewer main and easements and accepts new sewer main, a sanitary sewer manhole, a fire hydrant and easements for property located at 700 4th Avenue North (Special)
BL2017-879	Abandons existing combined sewer line and easements and accepts new combined sewer and water lines, combined sewer manholes, a fire hydrant and any associated easements for property located at 809 Main Street (Special)

Ordinance Number	Disposition
BL2017-880	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-881	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-882	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-883	Amends official zoning map (Special)
BL2017-884	Amends official zoning map (Special)
BL2017-885	Amends official zoning map (Special)
BL2017-886	Amends official zoning map (Special)
BL2017-887	Amends official zoning map (Special)
BL2017-888	Amends official zoning map (Special)
BL2017-889	Amends official zoning map (Special)
BL2017-890	Amends official zoning map (Special)
BL2017-891	Amends official zoning map (Special)
BL2017-892	Amends official zoning map (Special)
BL2017-893	Amends official zoning map (Special)
BL2017-894	Amends official zoning map (Special)
BL2017-895	Amends official zoning map (Special)
BL2017-896	Amends official zoning map (Special)
BL2017-897	Amends official zoning map (Special)
BL2017-898	Amends § 17.12.040.E.26. (17.12)
BL2017-899	Amends § 17.04.060.B., Table 17.08.030, Table 17.20.030 (17.04, 17.08, 17.20)
BL2017-900	Amends § 17.04.060 (17.04)
BL2017-901	Amends official zoning map (Special)
BL2017-902	Amends official zoning map (Special)
BL2017-903	Amends § 17.04.060, 17.28.100.C. (17.04, 17.28)
BL2017-904	Adds § 2.210.020.C. (2.210)
BL2017-905	Adds § 5.04.130 (5.04)
Amdt. 1	Amends § 1 of Ord. BL2017-905 (5.04)
BL2017-906	(Withdrawn)
BL2017-907	Amends § 7.08.090.E. (7.08)
BL2017-908	Amends § 15.64.032; adds § 15.64.140.C. (15.64)
BL2017-909	Provides the honorary designation of "Bridgestone Drive" for a portion of 4th Avenue South (Special)
Amdt. 1	Amends § 3 of Ord. BL2017-909 (Special)
BL2017-910	Approves a form Master Telecommunications Facility Licensing Agreement (Special)
Amdt. 1	Adds §§ 5, 6, renumbers § 5 as § 7 and amends Exhibit A of Ord. BL2017-910 (Special)
BL2017-911	Abandons existing easement rights in the former right-of-way of property located at 1930 Castleman Drive and to acquire two new sanitary sewer main easements for properties located at 1930 and 2000 Castleman Drive (Special)
BL2017-912	(Withdrawn)
BL2017-913	Abandons existing sanitary sewer and water mains, sanitary sewer manholes, fire hydrants and easements and to accept new sanitary sewer and water mains, sanitary sewer manholes, fire hydrants and any associated easements for properties located at 620 S. 9th Street and 804 Sylvan Street (Special)
BL2017-914	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-915	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-916	Amends official zoning map (Special)
BL2017-917	Amends official zoning map (Special)
BL2017-918	Amends official zoning map (Special)
BL2017-919	Amends official zoning map (Special)
BL2017-920	Amends official zoning map (Special)
BL2017-921	Amends official zoning map (Special)
BL2017-922	Amends official zoning map (Special)
BL2017-923	Amends official zoning map (Special)
BL2017-924	Amends official zoning map (Special)
BL2017-925	Amends official zoning map (Special)
BL2017-926	Amends official zoning map (Special)
BL2017-927	Amends official zoning map (Special)
BL2017-928	Amends official zoning map (Special)
BL2017-929	Amends official zoning map (Special)
BL2017-930	Amends official zoning map (Special)
BL2017-931	Amends official zoning map (Special)
BL2017-932	Amends official zoning map (Special)
BL2017-933	Amends official zoning map (Special)
BL2017-934	Amends official zoning map (Special)
BL2017-935	Amends official zoning map (Special)
BL2017-936	Amends official zoning map (Special)
BL2017-937	(Withdrawn)
BL2017-938	(Withdrawn)
BL2017-939	Adds § 2.04.060 (2.04)
BL2017-940	Amends § 2.24.250.A. (2.24)
BL2017-941	(Withdrawn)
BL2017-942	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-943	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-944	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-945	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2017-946	Amends official zoning map (Special)
BL2017-947	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-948	Addresses the employment of former employees of the Nashville Career Advancement Center by contractors of the metropolitan government in circumstances where such employees' services were terminated due to layoff (Special)
BL2017-949	Adopts debt management policy (Special)
BL2017-950	(Withdrawn)
BL2017-951	(Withdrawn)
BL2017-952	Adds § 4.48.115 (4.48)
Amdt. 1	Amends § 1 of Ord. BL2017-952 (4.48)
BL2017-953	Adds § 6.64.0035; amends § 6.64.080 (6.64)
Amdt. 1	Amends §§ 1 and 2 of Ord. BL2017-953 (6.64)
BL2017-954	Authorizes Nashville Electric Service to install, construct and maintain underground encroachments in the right-of-way located at 911 63rd Avenue North, 488 Myatt Drive and 219 Stewarts Ferry Pike (Special)
BL2017-955	Abandons existing sewer main and easements and to accept new sanitary sewer and water mains, sanitary sewer manholes and any associated easements, for property located at 4908 Delaware Avenue (Special)
BL2017-956	Abandons existing water main and to accept new water and sanitary sewer mains, sanitary sewer manholes, a fire hydrant and any associated easements, for properties located at 2998 Belwood Street and 215 31st Avenue North (Special)
BL2017-957	Abandons existing sewer main and easements and to accept new water main, a fire hydrant, a sanitary sewer manhole and any associated easements, for property located at 415 2nd Avenue North (Special)
BL2017-958	Abandons existing easement rights for a former 18-inch water main easement for 12 properties located along St. Francis Avenue, Park Circle, Acklen Park Drive and Wrenwood Drive (Special)
BL2017-959	Authorizes HR Properties of Tennessee, GP to install, construct and maintain underground encroachments in the right-of-way located at 5010 Illinois Avenue (Special)
BL2017-960	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-961	Amends official zoning map (Special)
BL2017-962	Amends official zoning map (Special)
BL2017-963	Amends official zoning map (Special)
BL2017-964	Amends official zoning map (Special)
BL2017-965	Amends official zoning map (Special)
BL2017-966	Amends official zoning map (Special)
BL2017-967	Amends official zoning map (Special)
BL2017-968	Amends official zoning map (Special)
BL2017-969	Amends official zoning map (Special)
BL2017-970	Amends official zoning map (Special)
BL2017-971	Amends official zoning map (Special)
BL2017-972	Amends official zoning map (Special)
BL2017-973	Amends official zoning map (Special)
BL2017-974	(Withdrawn)
BL2017-975	Amends official zoning map (Special)
BL2017-976	Amends official zoning map (Special)
BL2017-977	Amends official zoning map (Special)
BL2017-978	Amends official zoning map (Special)
BL2017-979	Amends official zoning map (Special)
BL2017-980	Amends § 17.16.030.E. (17.16)
BL2017-981	(Withdrawn)
BL2017-982	(Withdrawn)
BL2017-983	Amends § 2.210.030 (2.210)
Amdt. 1	Amends § 1 of Ord. BL2017-983 (2.210)
BL2017-984	Amends § 6.80.550 (6.80)
Amdt. 1	Amends §§ 1—5 and 15 of Ord. BL2017-984 (6.80)
BL2017-985	Authorizes the transfer of the real property located at 1010 Camilla Caldwell Lane (Special)
BL2017-986	Amends §§ 1.01.010—1.01.050 (1.01)
BL2017-987	Approves an agreement between the metropolitan government and Memphis Basketball, LLC (Special)
BL2017-988	Authorizes Twelfth Avenue Partners, LLC to install, construct and maintain underground and aerial encroachments in the right-of-way located at 306 12th Avenue South (Special)
BL2017-989	Authorizes 7th & Taylor Homeowners' Association, Inc. to install, construct and maintain underground encroachments in the right-of-way located at 701 B Taylor Street (Special)
BL2017-990	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-991	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)

Ordinance Number	Disposition
BL2017-992	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-993	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-994	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-995	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-996	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-997	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-998	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-999	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-1000	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-1001	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-1002	Amends the geographic information systems street and alley centerline layer (Special)
BL2017-1003	Amends official zoning map (Special)
BL2017-1004	Amends official zoning map (Special)
BL2017-1005	(Failed)
BL2017-1006	Accepts donation of real property (Special)
BL2017-1007	Approves a lease agreement (Special)
BL2017-1008	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-1009	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-1010	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2017-1011	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2017-1012	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2017-1013	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2017-1014	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2017-1015	Amends official zoning map (Special)
BL2017-1016	Amends official zoning map (Special)
BL2017-1017	Amends official zoning map (Special)
BL2017-1018	Amends official zoning map (Special)
BL2017-1019	Amends official zoning map (Special)
BL2017-1020	Amends official zoning map (Special)
BL2017-1021	Amends official zoning map (Special)
BL2017-1022	Amends official zoning map (Special)
BL2017-1023	Amends official zoning map (Special)
BL2017-1024	Amends official zoning map (Special)
BL2017-1025	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2017-1025 (Special)
BL2017-1026	Amends official zoning map (Special)
BL2017-1027	Amends official zoning map (Special)
BL2017-1028	Amends official zoning map (Special)
BL2017-1029	(Withdrawn)
BL2017-1030	(Withdrawn)
BL2017-1031	Adopts a transit improvement program for the Metropolitan Government of Nashville and Davidson County, approving a surcharge for the program, and requesting the Davidson County Election Commission to call a county-wide referendum election to be held on May 1, 2018, regarding the levying of the surcharge on certain taxes to fund the program (Special)

Ordinance Number	Disposition
Amdt. 1	Amends §§ 2, 3 of Ord. BL2017-1031 (Special)
Amdt. 2	Amends § 2 of Ord. BL2017-1031 (Special)
BL2017-1032	Amends § 7.08.040.A. (7.08)
BL2017-1033	Authorizes Spectrum Properties/Emery, LLC to install, construct and maintain underground encroachments in the right-of-way at 818 18th Avenue South (Special)
BL2017-1034	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2017-1035	Abandons existing sewer main and easements and to accept new water main, a fire hydrant, a sanitary sewer manhole and any associated easements, for properties located at 720, 724 and 728 Ermac Drive (Special)
BL2017-1036	Authorizes the metropolitan government to negotiate and accept permanent and/or temporary easements (Special)
RS2018-1036	Amends § 6.80.550 (6.08)
Amdt. 1	Deletes and substitutes § 1 of Res. RS2018-1036, adds §s; 19—23 to Ord. BL2017-984 (6.80.550)
BL2017-1037	Abandons existing sanitary sewer main, a sanitary sewer manhole and easements and to accept new sanitary sewer main, sanitary manholes and easements for properties located at 903 and 905 Curdwood Boulevard (Special)
BL2017-1038	Amends official zoning map (Special)
BL2017-1039	Amends official zoning map (Special)
BL2017-1040	Amends official zoning map (Special)
BL2018-1041	Approves lease agreement (Special)
BL2018-1042	Amends official zoning map (Special)
BL2018-1043	Amends official zoning map (Special)
BL2018-1044	Amends official zoning map (Special)
BL2018-1045	Amends official zoning map (Special)
BL2018-1046	Amends official zoning map (Special)
BL2018-1047	Amends official zoning map (Special)
BL2018-1048	Amends official zoning map (Special)
BL2018-1049	Amends official zoning map (Special)
BL2018-1050	Amends official zoning map (Special)
BL2018-1051	Amends official zoning map (Special)
BL2018-1052	Amends official zoning map (Special)
BL2018-1053	Amends official zoning map (Special)
BL2018-1054	Amends § 2.24.250 (2.24)
BL2018-1055	Adds § 2.164.020 (2.164)
BL2018-1056	(Withdrawn)
BL2018-1057	Amends § 10.20.360.B. (10.20)
BL2018-1058	Abandons existing easement rights (Special)
BL2018-1059	Abandons and accepts existing sewer main and easement (Special)
BL2018-1060	Amends the geographic information systems street and alley centerline layer (Special)
Amdt. 1	Amends second recital of Ord. BL2018-1060 (Special)
BL2018-1061	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1062	Amends official zoning map (Special)
BL2018-1063	Amends § 4.46.030 (4.46)
Amdt. 1	Amends § 1 of Ord. BL2018-1063 (4.46)
BL2018-1064	Authorizes acquisition of certain real property (Special)
BL2018-1065	Authorizes acquisition of certain real easements (Special)
BL2018-1066	Authorizes acquisition of certain real easements (Special)
BL2018-1067	Authorizes acquisition of certain real easements (Special)
BL2018-1068	Authorizes acquisition of certain real easements (Special)
BL2018-1069	Authorizes acquisition of certain real easements (Special)
BL2018-1070	Authorizes acquisition of certain real easements (Special)
BL2018-1071	Authorizes acquisition of certain real easements (Special)
BL2018-1072	Authorizes acquisition of certain real easements (Special)
BL2018-1073	Authorizes acquisition of certain real easements (Special)
BL2018-1074	Abandons and accepts existing sewer main and easement (Special)
BL2018-1075	Abandons existing sewer main and easement (Special)
BL2018-1076	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2018-1077	Abandons existing water main, sewer main and easements and accepts a fire hydrant and any associated easements (Special)
BL2018-1078	Abandons existing easement rights (Special)
BL2018-1079	Authorizes encroachment (Special)
BL2018-1080	Approves railroad agreement (Special)
BL2018-1081	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2018-1082	(Withdrawn)
BL2018-1083	Amends official zoning map (Special)
BL2018-1084	Amends official zoning map (Special)
BL2018-1085	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3, 4 of Ord. BL2018-1085 (Special)
BL2018-1086	Amends official zoning map (Special)
BL2018-1087	Amends official zoning map (Special)
BL2018-1088	Amends official zoning map (Special)
BL2018-1089	Amends official zoning map (Special)
BL2018-1090	Amends official zoning map (Special)

Ordinance Number	Disposition
Amdt. 1	Amends § 4 and revises site plan of Ord. BL2018-1090 (Special)
BL2018-1091	Amends official zoning map (Special)
BL2018-1092	Amends official zoning map (Special)
BL2018-1093	Amends official zoning map (Special)
BL2018-1094	Amends official zoning map (Special)
BL2018-1095	Amends official zoning map (Special)
BL2018-1096	Amends official zoning map (Special)
BL2018-1097	Amends official zoning map (Special)
BL2018-1098	Amends official zoning map (Special)
BL2018-1099	Amends official zoning map (Special)
BL2018-1100	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2018-1100 (Special)
BL2018-1101	Approves sublease agreement (Special)
BL2018-1102	Approves conveyance of a parcel of property (Special)
BL2018-1103	Abandons existing sewer main and fire hydrants and accepts combination sewer mains, sewer manholes and fire hydrants (Special)
BL2018-1104	Abandons and accepts water mains, sewer mains and easements (Special)
BL2018-1105	Abandons existing water line and accepts new water line and fire hydrant (Special)
BL2018-1106	Abandons existing water main and easements (Special)
BL2018-1107	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1108	Amends the geographic information systems street and alley centerline layer (Special)
Amdt. 1	Amends initial recital clause of Ord. BL2018-1108 (Special)
BL2018-1109	Amends official zoning map (Special)
BL2018-1110	Amends official zoning map (Special)
BL2018-1111	Amends § 2.222.040.C. (2.222)
Amdt. 1	Amends §§ 1—4 of Ord. BL2018-1111 (2.222)
BL2018-1112	Approves lease agreement (Special)
BL2018-1113	Amends the geographic information systems street and alley centerline layer (Special)
Amdt. 1	Amends § 1 of Ord. BL2018-1113 (Special)
BL2018-1114	Amends official zoning map (Special)
BL2018-1115	Amends official zoning map (Special)
BL2018-1116	Amends official zoning map (Special)
BL2018-1117	Amends official zoning map (Special)
BL2018-1118	Amends official zoning map (Special)
BL2018-1119	Amends official zoning map (Special)
BL2018-1120	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1121	Amends official zoning map (Special)
BL2018-1122	Amends § 17.40.280 (17.40)
BL2018-1123	Adds § 5.04.065 (5.04)
BL2018-1124	(Withdrawn)
BL2018-1125	Authorizes the metropolitan department of law to compromise and settle its claims against Teleport Communications America, LLC (formerly TCG Midsouth, Inc.) for unpaid right-of-way franchise fees (Special)
BL2018-1126	Approves agreement with CSX Transportation (Special)
BL2018-1127	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1128	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1129	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1130	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2018-1131	Approves donation of property (Special)
BL2018-1132	Abandons and accepts existing sewer main and easement (Special)
BL2018-1133	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2018-1134	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2018-1135	Abandons existing storm water pipe easement rights (Special)
BL2018-1136	Authorizes conveyance of a remnant of real property (Special)
BL2018-1137	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1138	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1139	(Failed)
BL2018-1140	Adds §§ 2.178.010—2.178.090 (2.178)
BL2018-1141	Amends official zoning map (Special)
BL2018-1142	Adds § 5.04.015.G. (5.04)
BL2018-1143	Approves agreement with CSX Transportation (Special)
BL2018-1144	Authorizes the granting of permanent and temporary easements (Special)
BL2018-1145	Abandons existing easement rights (Special)
BL2018-1146	Amends official zoning map (Special)
BL2018-1147	Amends official zoning map (Special)
BL2018-1148	Amends official zoning map (Special)
BL2018-1149	Amends official zoning map (Special)
BL2018-1150	Amends official zoning map (Special)
BL2018-1151	Amends official zoning map (Special)
BL2018-1152	Amends official zoning map (Special)
BL2018-1153	Amends official zoning map (Special)
BL2018-1154	Amends official zoning map (Special)
BL2018-1155	Amends official zoning map (Special)
BL2018-1156	Amends official zoning map (Special)
BL2018-1157	Adds § 15.64.175 (15.64)

Ordinance Number	Disposition
BL2018-1158	Amends official zoning map (Special)
BL2018-1159	Adds §§ 8.30.010—8.30.030 (8.30)
BL2018-1160	Provides for the designation of public property within specified areas of downtown Nashville as a temporary "Special Event Zone" during the time period beginning at six o'clock (6:00) a.m. on June 6, 2018, and ending at midnight (12:00) on June 11, 2018, relative to the use of these areas in conjunction with the 2018 CMA Fest and related activities and events (Special)
Amdt. 1	Adds § 7 and renumbers § 8 of Ord. BL2018-1160 (Special)
BL2018-1161	Approves agreement with Plaza 2750, LLC (Special)
BL2018-1162	Abandons an existing pump station and sanitary sewer force main and accepts new water and sanitary sewer mains, sanitary manholes, fire hydrants and easements (Special)
BL2018-1163	Abandons existing sewer main and easement and accepts new sewer mains, sanitary manholes, a fire hydrant and easements (Special)
BL2018-1164	Abandons existing easement and easement rights (Special)
BL2018-1165	Abandons existing water main and easement and accepts new water main, fire hydrants and easements (Special)
BL2018-1166	Abandons existing sewer mains and easement and accepts new sewer mains, sanitary sewer manholes and any associated easements (Special)
BL2018-1167	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1168	(Withdrawn)
BL2018-1169	Amends official zoning map (Special)
BL2018-1170	Amends official zoning map (Special)
BL2018-1171	Amends § 5.04.065 (5.04)
BL2018-1172	Amends § 5.12.130.B. (5.12)
Amdt. 1	Amends § 1 of Ord. BL2018-1172 (5.12)
BL2018-1173	(Withdrawn)
BL2018-1174	Approves agreement with Monroe Development Partners LLC (Special)
BL2018-1175	Approves Clark Agreement and Wirtgen Agreement (Special)
BL2018-1176	Amends Ord. BL2018-1079 (Special)
BL2018-1177	Abandons existing sanitary sewer and water mains and easements and accepts new water main, a fire hydrant and easements (Special)
BL2018-1178	Abandons existing easement rights (Special)
BL2018-1179	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2018-1180	Abandons existing sewer mains and easements and accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2018-1181	Amends §§ 1.01.010—1.01.050 (1.01)
BL2018-1182	Amends official zoning map (Special)
BL2018-1183	Amends § 17.16.070 (17.16)
BL2018-1184	Budget ordinance for fiscal year 2019 (Special)
BL2018-1185	Establishes tax levy in the General Services District for 2018—2019 (Special)
BL2018-1186	Establishes a program for the purpose of providing assistance to low-income elderly residents for the fiscal year 2018-2019 (Special)
BL2018-1187	Adds § 10.64.018 (10.64)
BL2018-1188	(Withdrawn)
BL2018-1189	(Withdrawn)
BL2018-1190	(Withdrawn)
BL2018-1191	Authorizes encroachment (Special)
BL2018-1192	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1193	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1194	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1195	Amends official zoning map (Special)
BL2018-1196	Adopts capital improvements budget and program 2018—2019 through 2023—2024 (Special)
Amdts. 1—8	Amends Ord. BL2018-1196 (Special)
BL2018-1197	(Withdrawn)
BL2018-1198	Approves partnership agreement with Cities for Financial Empowerment Fund, Inc. (Special)
BL2018-1199	Amends §§ 2.144.020, 2.144.030 (2.144)
BL2018-1200	Adds § 6.28.050 (6.28)
BL2018-1201	(Withdrawn)
BL2018-1202	Adds §§ 12.62.010—12.62.100 (12.62)
Amdts. A—C	Amends § 1 of Ord. BL2018-1202 (12.62)
BL2018-1203	Amends §§ 12.04.035, 12.58.020, 12.58.060; adds §§ 12.04.193, 12.04.194, 12.58.005 (12.04, 12.58)
BL2018-1204	Amends § 16.04.070 (16.04)
Amdt. 1	Amends § 1 of Ord. BL2018-1204 (16.04)
BL2018-1205	(Failed)

Ordinance Number	Disposition
BL2018-1206	Provides for the designation of public property within specified areas of downtown Nashville as a temporary "Special Event Zone" during the time period beginning at nine o'clock (9:00) p.m. on July 3, 2018, and ending at 6 o'clock (6:00) a.m. on July 5, 2018, relative to the use of these areas in conjunction with the 2018 July 4th Celebration and related activities and events (Special)
BL2018-1207	(Withdrawn)
BL2018-1208	Approves license agreements with Verizon Wireless (Special)
BL2018-1209	Grants the purchasing agent the authority to extend the term of contract number 318415 (Special)
BL2018-1210	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1211	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1212	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1213	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1214	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1215	Authorizes director of public property administration to execute a quitclaim deed (Special)
BL2018-1216	Approves agreement with Capitol View Joint Venture (Special)
BL2018-1217	Authorizes encroachment (Special)
BL2018-1218	Authorizes encroachment (Special)
BL2018-1219	Authorizes encroachment (Special)
BL2018-1220	Authorizes encroachment (Special)
BL2018-1221	Abandons existing sanitary sewer main and easement and accepts new sanitary sewer and water mains, fire hydrants, sanitary sewer manholes and easements (Special)
BL2018-1222	Abandons existing water main and easements and accepts new water mains, fire hydrants and easements (Special)
BL2018-1223	Abandons existing water main and easement and accepts new water main, a fire hydrant and any easement (Special)
BL2018-1224	Abandons existing easement rights and removes abandoned pipe (Special)
BL2018-1225	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1226	Amends official zoning map (Special)
BL2018-1227	Amends official zoning map (Special)
BL2018-1228	Amends official zoning map (Special)
BL2018-1229	Amends official zoning map (Special)
BL2018-1230	(Withdrawn)
BL2018-1231	Amends official zoning map (Special)
BL2018-1232	Amends official zoning map (Special)
BL2018-1233	Amends official zoning map (Special)
BL2018-1234	Amends official zoning map (Special)
BL2018-1235	Amends official zoning map (Special)
BL2018-1236	Amends official zoning map (Special)
BL2018-1237	Amends official zoning map (Special)
BL2018-1238	Amends official zoning map (Special)
BL2018-1239	Amends official zoning map (Special)
BL2018-1240	Amends official zoning map (Special)
BL2018-1241	Amends official zoning map (Special)
BL2018-1242	Amends official zoning map (Special)
BL2018-1243	Amends official zoning map (Special)
BL2018-1244	Amends official zoning map (Special)
BL2018-1245	Amends official zoning map (Special)
BL2018-1246	Adopts the Five Year Consolidated Plan and 2018 Action Plan for Housing and Community Development and authorizing the metropolitan mayor to submit the Consolidated Plan and 2018 Action Plan to the U.S. Department of Housing and Urban Development (Special)
Amdt. 1	Adds § 2 and renumbers the remaining sections of Ord. BL2018-1246 (Special)
BL2018-1247	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1248	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1249	Abandons existing sewer main and easements and accepts new sewer and water mains, sanitary manholes, a fire hydrant and easements (Special)
BL2018-1250	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1251	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1252	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1253	Amends official zoning map (Special)
BL2018-1254	Amends official zoning map (Special)
BL2018-1255	Amends § 3.16.020.E. (3.16)
BL2018-1256	Adds § 10.28.010.C.; amends § 16.24.330.E. (10.28, 16.24)
BL2018-1257	Approves a lease agreement with the Christine P. Nall Living Trust (Special)
BL2018-1258	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1259	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1260	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1261	Authorizes acquisition of certain easements and property rights (Special)

Ordinance Number	Disposition
BL2018-1262	Authorizes acquisition of certain easements and property rights (Special)
BL2018-1263	Abandons existing combined sewer main and easements and accepts new combined sewer main, combined sewer manholes and easements (Special)
BL2018-1264	Authorizes encroachment (Special)
BL2018-1265	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1266	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1267	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1268	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2018-1268 (Special)
BL2018-1269	Amends official zoning map (Special)
BL2018-1270	Amends official zoning map (Special)
BL2018-1271	Amends official zoning map (Special)
BL2018-1272	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2018-1272 (Special)
Amdt. 2	Amends § 4 of Ord. BL2018-1272 (Special)
BL2018-1273	Amends official zoning map (Special)
BL2018-1274	Amends official zoning map (Special)
BL2018-1275	Amends official zoning map (Special)
BL2018-1276	Amends official zoning map (Special)
Amdt. 1	Adds § 2 and renumbers subsequent sections of Ord. BL2018-1276 (Special)
BL2018-1277	Amends official zoning map (Special)
BL2018-1278	Amends official zoning map (Special)
BL2018-1279	Amends §§ 17.04.060, 17.16.050.D.1. (17.04, 17.16)
BL2018-1280	Approves the plans for a non-hazardous liquid waste processing facility to be located at 2832 Whites Creek Pike, Nashville, Tennessee 37207 (Special)
BL2018-1281	Adds §§ 2.230.010—2.230.050 (2.230)
Amdt. 1	Amends § 1 of Ord. BL2018-1281 (2.230)
BL2018-1282	Adds § 2.24.225 (2.24)
Amdt. 1	Amends § 1 of Ord. BL2018-1282 (2.24)
BL2018-1283	Adds § 5.04.140 (5.04)
Amdt. 1	Amends § 1 of Ord. BL2018-1283 (5.04)
Amdt. 2	Renumbers § 2 as § 3 and adds new § 2 of Ord. BL2018-1283 (Special)
BL2018-1284	Approves participation agreement with Regent Homes (Special)
BL2018-1285	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1286	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1287	Amends official zoning map (Special)
BL2018-1288	Amends § 17.20.030 (17.20)
Amdt. 1	Amends § 1 of Ord. BL2018-1288 (17.20)
BL2018-1289	Amends §§ 5.14.010, 5.14.020 (5.14)
Amdt. 1	Amends § 1 of Ord. BL2018-1289 (Special)
BL2018-1290	Amends official zoning map (Special)
Amdt. 1	Adds §§ 7, 8 and renumbers subsequent sections of Ord. BL2018-1290 (Special)
BL2018-1291	Declares surplus property and approves the execution and delivery of a ground lease (Special)
Amdt. 1	Amends the ground lease agreement, attached as Exhibit A, of Ord. BL2018-1291 (Special)
Amdt. 2	Amends the ground lease agreement, attached as Exhibit A, of Ord. BL2018-1291 (Special)
BL2018-1292	Amends §§ 12.140.030.A., 2.140.060 (2.140)
Amdt. 1	Amends § 2 of Ord. BL2018-1292 (2.140)
BL2018-1293	(Withdrawn)
BL2018-1294	(Withdrawn)
BL2018-1295	Amends § 13.08.040.B.6.f. (13.08)
BL2018-1296	Approves revocable license agreement with Glowco, LLC (Special)
BL2018-1297	Authorizes agreement with KJPL Riverwood, LLC (Special)
BL2018-1298	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2018-1299	Abandons existing sanitary sewer main and easements and accepts new sanitary sewer main, a sanitary sewer manhole and easements (Special)
BL2018-1300	Abandons existing sanitary sewer main and easements (Special)
BL2018-1301	Abandons existing sanitary sewer main and easement and accepts new sanitary sewer mains, sanitary sewer manholes, fire hydrants and easements (Special)
BL2018-1302	Authorizes the metropolitan government to remove existing clay sanitary sewer mains and sanitary sewer manholes and to replace with new sanitary sewer mains and sanitary sewer manholes (Special)
BL2018-1303	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1304	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1305	Amends official zoning map (Special)
BL2018-1306	Amends official zoning map (Special)
BL2018-1307	Amends official zoning map (Special)
BL2018-1308	Amends official zoning map (Special)
BL2018-1309	Amends official zoning map (Special)
BL2018-1310	Amends official zoning map (Special)
BL2018-1311	Amends official zoning map (Special)
BL2018-1312	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2018-1313	Approves a contract by and between the metropolitan government, acting by and through the mayor's office and the United Way of Metropolitan Nashville (Special)
BL2018-1314	Amends requirements for the Blue Ribbon Commission, as established by Substitute Ordinance BL2018-1184 (Special)
Amdt. 1	Amends §§ 1 and 2 of Ord. BL2018-1314 (Special)
BL2018-1315	Creates a tax increment financing study and formulating committee (Special)
BL2018-1316	Amends § 17.24.060 (17.24)
BL2018-1317	Amends § 17.40.160 (17.40)
BL2018-1318	Amends official zoning map (Special)
BL2018-1319	(Withdrawn)
BL2018-1320	(Withdrawn)
BL2018-1321	Disclaims any interest the metropolitan government may have in the Nashville-Gallatin Interurban Railroad right-of-way (Special)
BL2018-1322	Amends official zoning map (Special)
BL2018-1323	Amends official zoning map (Special)
BL2018-1324	Amends official zoning map (Special)
BL2018-1325	Amends official zoning map (Special)
BL2018-1326	Amends official zoning map (Special)
BL2018-1327	Amends official zoning map (Special)
BL2018-1328	(Withdrawn)
BL2018-1329	Amends §§ 12.42.040.B., 12.42.050.B., 12.42.090, 12.42.100.A. (12.42)
Amdt. 1	Amends § 1 of Ord. BL2018-1329 (12.42)
BL2018-1330	Authorizes Liberty Green SoBro, LLC to install, construct and maintain aerial and underground encroachments in the right-of-way located at 207 1st Avenue South (Special)
BL2018-1331	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1332	Abandons existing easement rights located between Alley #1209 and Louisiana Avenue, formerly known as 53rd Avenue North (Special)
BL2018-1333	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1334	(Withdrawn)
BL2018-1335	Approves agreement between the county, acting by and through the Metropolitan Nashville Police Department, and Airborne Public Safety Association, Inc. (Special)
BL2018-1336	Approves amendments to an intergovernmental license agreement between the metropolitan government and the State of Tennessee and an easement agreement between the metropolitan government and William G. Hitt, Trustee for the William G. Hitt GST-Exempt Trust, both pertaining to the Whites Creek Greenway (Special)
BL2018-1337	Approves Amendment One to an option agreement between the Metropolitan Government of Nashville and Davidson County and the Tennessee Wildlife Resources Foundation, Inc. (Special)
BL2018-1338	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2018-1339	Abandons existing water mains, sanitary sewer main, one sanitary sewer manhole and any associated easements for various properties located on Charlotte Pike and Rodney Drive (Special)
BL2018-1340	Abandon existing combined sewer main and to accept new sewer mains and sewer manholes for property located at 109 29th Avenue North (Special)
BL2018-1341	Abandons and removes existing sewer main and sewer manholes for properties located at Demonbreun Street (unnumbered) and 1219 McGavock Street (Special)
BL2018-1342	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1343	Amends the geographic information systems street and alley centerline layer (Special)
Amdt. 1	Amends § 4 of Ord. BL2018-1343 (Special)
BL2018-1344	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1345	Amends official zoning map (Special)
BL2018-1346	Amends official zoning map (Special)
BL2018-1347	Amends official zoning map (Special)
BL2018-1348	Amends official zoning map (Special)
BL2018-1349	Amends official zoning map (Special)
BL2018-1350	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2018-1350 (Special)
BL2018-1351	Amends official zoning map (Special)
BL2018-1352	Amends official zoning map (Special)
BL2018-1353	Amends official zoning map (Special)
BL2018-1354	Amends official zoning map (Special)
BL2018-1355	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2018-1355 (Special)
Amdt. 2	Amends § 4 of Ord. BL2018-1355 (Special)
BL2018-1356	Amends official zoning map (Special)

Ordinance Number	Disposition
Amdt. 1	Amends § 3 of Ord. BL2018-1356 (Special)
Amdt. 2	Amends § 4 of Ord. BL2018-1356 (Special)
BL2018-1357	Amends official zoning map (Special)
BL2018-1358	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2018-1358 (Special)
BL2018-1359	Amends official zoning map (Special)
BL2018-1360	Amends official zoning map (Special)
BL2018-1361	Amends official zoning map (Special)
BL2018-1362	Amends official zoning map (Special)
BL2018-1363	(Deferred indefinitely)
BL2018-1364	Amends official zoning map (Special)
BL2018-1365	Amends official zoning map (Special)
BL2018-1366	Amends official zoning map (Special)
BL2018-1367	Amends official zoning map (Special)
BL2018-1368	Amends official zoning map (Special)
Amdt. 1	Amends § 3 of Ord. BL2018-1368 (Special)
BL2018-1369	Amends official zoning map (Special)
BL2018-1370	Amends official zoning map (Special)
Amdt. 1	Amends §§ 4 and 7 of Ord. BL2018-1370 (Special)
BL2018-1371	(Withdrawn)
BL2018-1372	(Withdrawn)
BL2018-1373	Declares surplus and approves the disposition of a parcel of real property (Special)
BL2018-1374	Declares surplus and approves the disposition of a parcel of real property (Special)
BL2018-1375	Amends § 2.206.010 (2.206)
BL2018-1376	Amends § 7.16.030.A.2. (7.16)
Amdt. 1	Amends § 1 of Ord. BL2018-1376 (7.16)
BL2018-1377	Approves right-of-way relocation agreement (Special)
BL2018-1378	Approves an amendment to an agreement the metropolitan government and Plaza 2750, LLC (Special)
BL2018-1379	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Department of Parks and Recreation ("Parks"), and Memphis Basketball, LLC (Special)
BL2018-1380	Authorizes SWVP Nashville Hotel, LLC to install, construct and maintain aerial and underground encroachments in the right-of-way located at 1000 Broadway (Special)
BL2018-1381	Authorizes LC Germantown, LLC to install, construct and maintain underground encroachments in the right-of-way located at 1226 2nd Avenue North (Special)
BL2018-1382	Authorizes Fountains Germantown Holdings, LLC to install, construct and maintain underground encroachments in the right-of-way located at 1401 3rd Avenue North (Special)
BL2018-1383	Authorizes Pizzuti Nashville Hotel Owner, LLC to install, construct and maintain aerial and underground encroachments in the right-of-way located at 401 Korean Veterans Boulevard (Special)
BL2018-1384	Amends official zoning map (Special)
BL2018-1385	Adds § 1.04.070 (1.04)
Amdt. 1	Amends § 1 of Ord. BL2018-1385 (1.04)
BL2018-1386	Designates public property within specified areas of downtown as a temporary "Special Event Zone" (Special)
Amdt. 1	Amends § 4 of Ord. BL2018-1386 (Special)
BL2018-1387	Amends §§ 1.01.010—1.01.050 (1.01)
BL2018-1388	(Withdrawn)
BL2018-1389	Abandons existing easement rights located at Omohundro Place (Special)
BL2018-1390	Abandons existing easement rights located between Division Street and an unnamed alley adjacent to Interstate 40, formerly known as an unnamed alley parallel to Eighth Avenue South (Special)
BL2018-1391	Abandons existing sanitary sewer main and to accept new sanitary sewer main, sanitary sewer manholes and easements, for properties located at 100 and 104 Fern Avenue (Special)
BL2018-1392	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1393	Amends official zoning map (Special)
BL2018-1394	Amends official zoning map (Special)
BL2018-1395	Amends official zoning map (Special)
BL2018-1396	Amends official zoning map (Special)
BL2018-1397	(Withdrawn)
BL2018-1398	Amends official zoning map (Special)
BL2018-1399	Amends official zoning map (Special)
BL2018-1400	(Withdrawn)
BL2018-1401	Amends official zoning map (Special)
BL2018-1402	Amends official zoning map (Special)
BL2018-1403	Amends § 17.28.103.D.5. (17.28)
BL2018-1404	(Withdrawn)
BL2018-1405	Amends §§ 7.08.010—7.08.030, 7.08.090, 7.08.180 (7.08)
BL2018-1406	Amends § 10.20.110.A. (10.20)
Amdt. 1	Amends § 1 of Ord. BL2018-1406 (10.20)
BL2018-1407	Amends § 15.64.170.B. (15.64)
Amdt. 1	Amends § 1 of Ord. BL2018-1407 (15.64)
BL2018-1408	Executes license agreement with Global Music Rights (Special)
BL2018-1409	Authorizes Oliver McMillan Spectrum Emery, LLC to install, construct and maintain aerial and underground encroachments in the right-of-way located at 601 Commerce Street (Special)

Ordinance Number	Disposition
BL2018-1410	Authorizes 204 Acklen, LLC to install, construct and maintain underground encroachments in the right-of-way located at 204 Acklen Park Drive (Special)
BL2018-1411	Authorizes E3 Construction Services, LLC to install, construct and maintain underground encroachments in the right-of-way located at 613 B 27th Avenue North (Special)
BL2018-1412	Abandons existing water and sanitary sewer mains, a sanitary sewer manhole and easements and to accept new water and sanitary sewer mains, sanitary sewer manholes, fire hydrants and easements, for six properties located on South 6th Street and South 7th Street (Special)
BL2018-1413	Amends official zoning map (Special)
BL2018-1414	Amends official zoning map (Special)
BL2018-1415	Amends official zoning map (Special)
BL2018-1416	Amends §§ 17.04.060, 17.20.110, Ch. 17.24 (title), §§ 17.24.010, 17.24.020, 17.24.090, 17.24.100, 17.24.110, 17.24.150, 17.24.160, 17.24.240, Table 17.24.230, §§ 17.40.440, 17.40.450, 17.40.470 (17.04, 17.20, 17.24, 17.40)
Amdt. 1	Amends §§ 2, 6, 7, and 15 of Ord. BL2018-1416 (17.04, 17.24, 17.40)
Amdt. 2	Amends § 16 of Ord. BL2018-1416 (Special)
BL2018-1417	Amends § 17.36.100.B.; adds §§ 17.36.110.E., 17.36.120.D. (17.36)
BL2018-1418	Amends § 17.40.420 (17.40)
BL2018-1419	Amends Ch. 4.46, §§ 4.46.001, 4.46.010—4.46.130 (4.46)
Amdt. 1	Amends § 1 of Ord. BL2018-1419 (4.46)
BL2018-1420	Authorizes acquisition of temporary and permanent easements through negotiation, condemnation and acceptance (Special)
BL2018-1421	Authorizes the acquisition of certain right-of-way easements and property rights by negotiation or condemnation (Special)
BL2018-1422	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2018-1423	Authorizes LVH, LLC to install, construct and maintain underground and aerial encroachments in the right-of-way located at 1234 Martin Street (Special)
BL2018-1424	Amends official zoning map (Special)
BL2018-1425	Amends official zoning map (Special)
BL2018-1426	Amends official zoning map (Special)
BL2018-1427	Amends official zoning map (Special)
BL2018-1428	Amends official zoning map (Special)
BL2018-1429	Amends official zoning map (Special)
BL2018-1430	Amends official zoning map (Special)
BL2018-1431	Amends official zoning map (Special)
BL2018-1432	Amends official zoning map (Special)
BL2018-1433	Amends official zoning map (Special)
BL2018-1434	Amends official zoning map (Special)
BL2018-1435	Amends official zoning map (Special)
BL2018-1436	Amends official zoning map (Special)
BL2018-1437	Amends official zoning map (Special)
BL2018-1438	Amends official zoning map (Special)
BL2018-1439	Amends § 2.149.040.G. (2.149)
BL2018-1440	Amends § 7.08.140 (7.08)
BL2018-1441	Amends §§ 12.62.020, 12.62.040, 12.62.050, 12.62.080, 12.84.020; adds §§ 12.62.110, 12.62.120 (12.62, 12.84)
Amdt. 1	Amends § 6 of Ord. BL2018-1441 (12.62)
Amdt. 2	Amends §§ 1, 2, 4—7, 11, 12 and deletes §§ 9 and 10 of Ord. BL2018-1441 (12.62)
BL2018-1442	Approves the acquisition of interests in a parcel of real property from four parties and approving a participation agreement, a license agreement, and an easement agreement (Special)
Amdt. 1	Amends the participation agreement and § 6 of Ord. BL2018-1442 (Special)
Amdt. 2	Amends the participation agreement of Ord. BL2018-1442 (Special)
BL2018-1443	Approves license agreement with Verizon Wireless (Special)
BL2018-1444	Adopts the geographic information systems street and alley centerline layer (Special)
BL2018-1445	Abandons existing sanitary sewer main and easement and to accept new sanitary sewer main, sanitary sewer manholes, and easements for property located at 5502 Old Hickory Boulevard (Special)
BL2018-1446	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2018-1447	Abandons existing sanitary sewer main, sanitary sewer manholes, and easements and to accept new sanitary sewer mains, sanitary sewer manholes, water mains, fire hydrants and easements (Special)
BL2018-1448	Abandons existing sanitary sewer mains, sanitary sewer manholes, and easements and to accept new water and sanitary sewer mains, sanitary sewer manholes, a fire hydrant, and easements (Special)
BL2018-1449	Authorizes Broadstone Stockyard Flats, LLC to install, construct, and maintain aerial and underground encroachments in the right-of-way located at 901 2nd Avenue North (Special)

Ordinance Number	Disposition
BL2018-1450	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1451	Amends the geographic information systems street and alley centerline layer (Special)
BL2018-1452	Amends official zoning map (Special)
BL2018-1453	(Withdrawn)
BL2018-1454	Amends official zoning map (Special)
BL2018-1455	Amends § 17.04.060.B. (17.04)
BL2018-1456	(Withdrawn)
BL2018-1457	Amends §§ 17.08.030, 17.16.070.E., F. (17.08, 17.16)
BL2019-1458	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)
BL2019-1459	Authorizes the installation, construction, and maintenance of underground encroachment (Special)
BL2019-1460	Amends official zoning map (Special)
BL2019-1461	Amends official zoning map (Special)
BL2019-1462	Amends official zoning map (Special)
BL2019-1463	Amends official zoning map (Special)
BL2019-1464	(Withdrawn)
BL2019-1465	Amends official zoning map (Special)
Amdt. 1	Replaces map of Ord. BL2019-1465 (Special)
BL2019-1466	Amends official zoning map (Special)
BL2019-1467	Amends official zoning map (Special)
BL2019-1468	Amends official zoning map (Special)
BL2019-1469	Amends official zoning map (Special)
BL2019-1470	(Withdrawn)
BL2019-1471	(Withdrawn)
BL2019-1472	Adds § 2.210.020.D. (2.210)
Amdt. 1	Amends § 1 of Ord. BL2019-1472 (2.210)
Amdt. 2	Amends § 1 of Ord. BL2019-1472 (2.210)
BL2019-1473	Amends § 11.12.070.A.1. (11.12)
Amdt. 1	Amends § 1 of Ord. BL2019-1473 (11.12)
BL2019-1474	(Failed)
BL2019-1475	Amends §§ 15.64.110, 15.64.140 (15.64)
Amdt. 1	Amends § 1 of Ord. BL2019-1475 (15.64)
BL2019-1476	(Failed)
BL2019-1477	Declares surplus and approves disposition of a parcel of real property (Special)
BL2019-1478	Declares surplus and approves disposition of a parcel of real property (Special)
BL2019-1479	Declares surplus and approves disposition of a parcel of real property (Special)
BL2019-1480	Authorizes acquisition of certain easements and property rights (Special)
BL2019-1481	Authorizes acquisition of certain easements (Special)
BL2019-1482	Abandons and accepts existing sewer main and easement (Special)
BL2019-1483	Abandons and accepts existing sewer main and easement (Special)
BL2019-1484	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-1485	Approves a form Master Participation Agreement (Special)
BL2019-1486	Requires the Metropolitan Government of Nashville and Davidson County to provide an online link to any Report on Debt Obligation that it is required to file with the State of Tennessee (Special)
BL2019-1487	Amends § 5.04.110 (5.04)
BL2019-1488	(Withdrawn)
BL2019-1489	(Withdrawn)
BL2019-1490	Adds §§ 6.73.175, 6.74.165, 6.75.185, 12.54.175 (6.73, 6.74, 6.75, 12.54)
BL2019-1491	Directs the metropolitan planning department, the department of public works, the department of codes and building safety, Metro Water Services, and the Nashville Fire Department to develop and implement, within six months hereof, a prioritization process for the departmental review of permit applications and related reviews for certain affordable housing projects (Special)
Amdt. 1	Amends § 1 of Ord. BL2019-1491 (Special)
BL2019-1492	Directs the metropolitan department of public works to complete their analysis for the reduction of vehicular speed limits on neighborhood classified streets (Special)
BL2019-1493	Approves contract with Concentra Health Services, Inc. (Special)
BL2019-1494	Accepts donation of real property (Special)
BL2019-1495	Abandons existing sanitary sewer main, a sanitary sewer manhole and easements and accepts new sanitary sewer and water mains, sanitary sewer manholes, a fire hydrant assembly and easements (Special)
BL2019-1496	Accepts new water main, sanitary sewer mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2019-1497	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2019-1498	Abandons existing water main and accepts new water main and a fire hydrant assembly (Special)
BL2019-1499	Abandons existing water main and easements and accepts new water main, a fire hydrant assembly and easements (Special)
BL2019-1500	Abandons existing water main and easements and accepts new water main, a fire hydrant assembly and easements (Special)
BL2019-1501	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)

Ordinance Number	Disposition
BL2019-1502	Abandons existing easement rights (Special)
BL2019-1503	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-1504	Amends official zoning map (Special)
BL2019-1505	Amends official zoning map (Special)
BL2019-1506	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2019-1506 (Special)
Amdt. 2	Amends § 4 of Ord. BL2019-1506 (Special)
BL2019-1507	Amends official zoning map (Special)
BL2019-1508	Amends official zoning map (Special)
BL2019-1509	Amends official zoning map (Special)
BL2019-1510	Amends official zoning map (Special)
BL2019-1511	Amends official zoning map (Special)
Amdt. 1	Renumbers § 8 as § 9 and adds new § 8 of Ord. BL2019-1511 (Special)
BL2019-1512	Amends official zoning map (Special)
BL2019-1513	Amends official zoning map (Special)
BL2019-1514	Amends official zoning map (Special)
BL2019-1515	Amends official zoning map (Special)
BL2019-1516	(Failed)
BL2019-1517	Amends § 1.24.050 (1.24)
Amdt. 1	Amends § 1 of Ord. BL2019-1517 (1.24)
BL2019-1518	(Withdrawn)
BL2019-1519	Amends Ord. 93-740 (Special)
Amdt. 1	Amends § 1 of Ord. BL2019-1519 (Special)
BL2019-1520	Amends Ord. BL2000-278 (Special)
Amdt. 1	Amends § 1 of Ord. BL2019-1520 (Special)
BL2019-1521	Designates honorary street name (Special)
Amdt. 1	Amends second recital and § 1 of Ord. BL2019-1521 (Special)
BL2019-1522	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2019-1523	Amends official zoning map (Special)
BL2019-1524	(Withdrawn)
BL2019-1525	Amends § 4.12.010 (4.12)
BL2019-1526	Adds §§ 6.80.195, 6.80.452 (6.80)
Amdt. 1	Amends § 2 of Ord. BL2019-1526 (6.80)
BL2019-1527	(Withdrawn)
BL2019-1528	Designates public property within specified areas of downtown as a temporary "Special Event Zone" (Special)
BL2019-1529	Amends official zoning map (Special)
BL2019-1530	Amends official zoning map (Special)
BL2019-1531	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3 and 4 of Ord. BL2019-1531 (Special)
BL2019-1532	Amends official zoning map (Special)
BL2019-1533	Amends official zoning map (Special)
BL2019-1534	Amends official zoning map (Special)
BL2019-1535	Amends official zoning map (Special)
BL2019-1536	Amends official zoning map (Special)
BL2019-1537	(Withdrawn)
BL2019-1538	Amends official zoning map (Special)
BL2019-1539	Amends official zoning map (Special)
BL2019-1540	Adds §§ 17.36.510—17.36.560; amends § 17.40.740.C.3. (17.36, 17.40)
Amdt. 1	Amends § 4 of Ord. BL2019-1540 (17.36)
BL2019-1541	Amends official zoning map (Special)
BL2019-1542	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)
BL2019-1543	(Withdrawn)
BL2019-1544	Approves an affiliation agreement with between Vanderbilt University (Special)
BL2019-1545	Authorizes execution of quitclaim deed (Special)
BL2019-1546	Accepts donation of real property (Special)
BL2019-1547	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)
BL2019-1548	Authorizes the installation, construction, and maintenance of underground encroachments (Special)
BL2019-1549	Abandons existing water main and sanitary sewer mains, a fire hydrant, sanitary sewer manholes, and easements and accepts new water and sanitary sewer mains, sanitary sewer manholes, fire hydrants, and easements (Special)
BL2019-1550	Abandons existing sanitary sewer and water mains, a sanitary sewer manhole, a fire hydrant assembly and easements and accepts new water and sanitary sewer mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2019-1551	Abandons existing sanitary sewer main and easements (Special)
BL2019-1552	Abandons existing sanitary sewer main, a sanitary sewer manhole and easement and accepts new sanitary sewer main, sanitary sewer manholes, an adjustment to an existing sanitary sewer manhole and easements (Special)
BL2019-1553	Abandons existing sanitary sewer main, a sanitary sewer manhole and easements and accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2019-1554	Abandons existing water main and easement and accepts the relocation of a fire hydrant assembly, a new fire hydrant and easement (Special)
BL2019-1555	Accepts new water main, fire hydrant assemblies and easements (Special)

Ordinance Number	Disposition
BL2019-1556	Abandons existing water main and easement and accepts new water main and easement (Special)
BL2019-1557	Abandons existing easement rights (Special)
BL2019-1558	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-1559	Amends official zoning map (Special)
BL2019-1560	Amends §§ 2.211.010—2.211.030 (2.211)
BL2019-1561	Amends § 5.24.010 (5.24)
BL2019-1562	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2019-1563	Accepts a new fire hydrant assembly (Special)
BL2019-1564	Abandons a utility easement and accepts new water main, a fire hydrant assembly and easement (Special)
BL2019-1565	Abandons existing public sanitary sewer main, sanitary sewer manholes and easements and accepts new public sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2019-1566	Authorizes acquisition of temporary and permanent easements through negotiation, condemnation and acceptance (Special)
BL2019-1567	Abandons existing sanitary sewer main and easement (Special)
BL2019-1568	(Withdrawn)
BL2019-1569	Amends official zoning map (Special)
BL2019-1570	Amends official zoning map (Special)
BL2019-1571	Amends official zoning map (Special)
BL2019-1572	Amends official zoning map (Special)
BL2019-1573	Amends official zoning map (Special)
BL2019-1574	Amends official zoning map (Special)
BL2019-1575	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3 and 4 of Ord. BL2019-1575 (Special)
BL2019-1576	(Withdrawn)
BL2019-1577	(Withdrawn)
BL2019-1578	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3 and 4 of Ord. BL2019-1578 (Special)
BL2019-1579	Amends official zoning map (Special)
BL2019-1580	Amends official zoning map (Special)
BL2019-1581	Amends official zoning map (Special)
BL2019-1582	Amends official zoning map (Special)
BL2019-1583	Amends official zoning map (Special)
BL2019-1584	(Withdrawn)
BL2019-1585	Amends official zoning map (Special)
BL2019-1586	Amends official zoning map (Special)
BL2019-1587	Amends official zoning map (Special)
BL2019-1588	Amends official zoning map (Special)
BL2019-1589	Amends official zoning map (Special)
BL2019-1590	Amends official zoning map (Special)
BL2019-1591	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3 and 4 of Ord. BL2019-1591 (Special)
BL2019-1592	Amends official zoning map (Special)
BL2019-1593	Amends official zoning map (Special)
BL2019-1594	Amends official zoning map (Special)
BL2019-1595	Amends official zoning map (Special)
BL2019-1596	Amends official zoning map (Special)
BL2019-1597	(Withdrawn)
BL2019-1598	Adds § 2.32.065 (2.32)
Amdt. 1	Amends § 1 of Ord. BL2019-1598 (2.32)
BL2019-1599	Adds § 2.32.070; amends §§ 16.60.050, 16.60.060, 16.60.070, 16.60.100 (2.32, 16.60)
Amdt. 1	Amends §§ 1—4 of Ord. BL2019-1599 (2.32, 16.60)
Amdt. 2	Amends § 1 of Ord. BL2019-1599 (2.32)
BL2019-1600	Adds § 2.32.080 (2.32)
Amdt. 1	Amends § 1 of Ord. BL2019-1600 (2.32)
BL2019-1601	Amends § 4.12.230 (4.12)
Amdt. 1	Amends § 1 of Ord. BL2019-1601 (4.12)
BL2019-1602	Amends § 5.04.110 (5.04)
Amdt. 1	Amends § 1 of Ord. BL2019-1602 (5.04)
BL2019-1603	Designates public property within specified areas of downtown as a temporary "Special Event Zone" (Special)
BL2019-1604	Authorizes the execution of an amended and restated agreement with respect to the development and operation of the Museum of African American Music, Art and Culture (Special)
BL2019-1605	Approves a sublease of a portion of property (Special)
Amdt. 1	Amends attachment of Ord. BL2019-1605 (Special)
BL2019-1606	(Failed)
BL2019-1607	Relinquishes interest in a parcel of real estate (Special)
BL2019-1608	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-1609	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-1610	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-1611	Amends official zoning map (Special)
BL2019-1612	Amends § 4.12.160 (4.12)
BL2019-1613	Amends § 5.06.040 (5.06)
BL2019-1614	(Withdrawn)
BL2019-1615	(Withdrawn)
BL2019-1616	(Withdrawn)
BL2019-1617	Accepts new sanitary sewer main, sanitary sewer manholes and to relocate one fire hydrant assembly (Special)

Ordinance Number	Disposition
BL2019-1618	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)
BL2019-1619	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)
Amdt. 1	Adds an attachment to Ord. BL2019-1619 (Special)
BL2019-1620	Abandons existing easement rights (Special)
BL2019-1621	Amends the geographic information systems street and alley centerline layer (Special)
Amdt. 1	Amends § 1 of Ord. BL2019-1621 (Special)
BL2019-1622	Amends the geographic information systems street and alley centerline layer (Special)
Amdt. 1	Amends § 1 of Ord. BL2019-1622 (Special)
BL2019-1623	Amends official zoning map (Special)
BL2019-1624	Budget ordinance for fiscal year 2020 (Special)
BL2019-1625	Establishes tax levy in the General Services District for 2019—2020 (Special)
BL2019-1626	Establishes a program for the purpose of providing assistance to low-income elderly residents for the fiscal year 2019-2020 (Special)
BL2019-1627	Approves new fee structure for short-term rental property applications (Special)
BL2019-1628	Amends official zoning map (Special)
BL2019-1629	Amends official zoning map (Special)
BL2019-1630	Amends §§ 5.06.050, 5.06.060 (5.06)
BL2019-1631	Repeals §§ 6.75.245, 10.44.110, 11.12.070, 12.32.050, 16.44.010—16.44.060, 17.28.090; adds §§ 9.10.010, 9.10.020, 9.20.010—9.20.060, 9.30.010—9.30.040, 11.12.070, 16.44.010 (6.75, 9.10, 9.20, 9.30, 10.44, 11.12, 12.32, 16.44, 17.28)
Amdt. 1	Adds §§ 3 and 4 of Ord. BL2019-1631 (11.12, 16.44)
BL2019-1632	(Withdrawn)
BL2019-1633	Amends §§ 17.08.030, 17.16.070, 17.16.250 (17.08, 17.16)
BL2019-1634	(Withdrawn)
BL2019-1635	Amends § 17.32.150.B.9. (17.32)
BL2019-1636	Amends § 17.40.106.C. (17.40)
BL2019-1637	Amends § 17.40.720.A. (17.40)
BL2019-1638	Amends partnership agreement with Cities for Financial Empowerment Fund, Inc. (Special)
BL2019-1639	Creates the positons of 311 Call Center Specialist, 311 Call Center Specialist Senior, Crime Scene Investigator 3, and Fire Inspector 2—Field Training Officer (Special)
BL2019-1640	Creates the position of Bureau Director 2 for the Metropolitan Department of Health (Special)
BL2019-1641	Designates public property within specified areas of downtown as a temporary "Special Event Zone" (Special)
BL2019-1642	Approves participation agreement with Stratos Development Group, LLC (Special)
BL2019-1643	(Withdrawn)
BL2019-1644	Amends Ord. BL2018-1315 (Special)
Amdt. 1	Amends § 1 of Ord. BL2019-1644 (Special)
BL2019-1645	Approves Amendment No. 6 to the Arts Center Redevelopment Plan, Amendment No. 1 to the Bordeaux Redevelopment Plan, Amendment No. 1 to the Cayce Place Redevelopment Plan, Amendment No. 1 to the Central State Redevelopment Plan, Amendment No. 2 to the Jefferson Street Redevelopment Plan, Amendment No. 6 to the Phillips-Jackson Redevelopment Plan, Amendment No. 8 to the Rutledge Hill Redevelopment Plan, and Amendment No. 1 to the Skyline Redevelopment Plan (Special)
BL2019-1646	Abandons existing easement rights (Special)
BL2019-1647	Abandons existing easement rights (Special)
BL2019-1648	Accepts new sanitary sewer and water mains, sanitary sewer manholes and fire hydrant assemblies (Special)
BL2019-1649	Accepts new sanitary sewer and water mains, sanitary sewer manholes and fire hydrant assemblies (Special)
BL2019-1650	Abandons existing public water main and public sanitary sewer main, a sanitary sewer manhole, and easements and accepts new water and sanitary sewer mains, a fire hydrant assembly, sanitary sewer manholes, and easements (Special)
BL2019-1651	Amends official zoning map (Special)
BL2019-1652	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3 and 4 of Ord. BL2019-1652 (Special)
BL2019-1653	Requires a flag of the Metropolitan Government of Nashville and Davidson County be presented to the family of a current or former elected metropolitan official, including a current or former member of the metropolitan county council, upon the official's death (Special)
BL2019-1654	Adopts capital improvements budget and program 2019—2020 through 2024—2025 (Special)
BL2019-1655	(Withdrawn)
BL2019-1656	Amends §§ 6.72.245.A., 6.74.230.A. (6.72, 6.74)

Ordinance Number	Disposition
BL2019-1657	Amends §§ 12.54.010, 12.54.030, 12.54.040, 12.54.050, 12.54.070, 12.54.090, 12.54.130, 12.54.140, 12.54.200, 12.54.240, 12.54.260; adds §§ 12.54.141—12.54.146, 12.54.350; repeals §§ 12.54.160, 12.54.180 (12.54)
BL2019-1658	Repeals §§ 12.62.020—12.62.120; adds § 12.62.020 (12.62)
Amdt. 1	Amends § 2 of Ord. BL2019-1658 (12.62)
BL2019-1659	Amends §§ 17.20.120 and 17.20.125 (17.20)
BL2019-1660	Approves participation agreement with Doug Simpson (Special)
BL2019-1661	Authorizes the granting of permanent easements (Special)
BL2019-1662	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2019-1663	Accepts new sanitary sewer main and a sanitary sewer manhole (Special)
BL2019-1664	Abandons existing water and sanitary sewer mains, sanitary sewer manholes, fire hydrant assemblies and easements and accepts new water and sanitary sewer mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2019-1665	Accepts new sanitary sewer main and sanitary sewer manholes (Special)
BL2019-1666	Amends official zoning map (Special)
BL2019-1667	(Withdrawn)
BL2019-1668	Amends official zoning map (Special)
BL2019-1669	Amends official zoning map (Special)
BL2019-1670	Amends official zoning map (Special)
BL2019-1671	Amends official zoning map (Special)
BL2019-1672	Amends official zoning map (Special)
BL2019-1673	Amends official zoning map (Special)
BL2019-1674	Amends official zoning map (Special)
BL2019-1675	Amends official zoning map (Special)
BL2019-1676	Amends official zoning map (Special)
BL2019-1677	Amends official zoning map (Special)
BL2019-1678	Amends official zoning map (Special)
BL2019-1679	(Withdrawn)
BL2019-1680	Amends official zoning map (Special)
BL2019-1681	Amends official zoning map (Special)
BL2019-1682	(Withdrawn)
BL2019-1683	Amends official zoning map (Special)
BL2019-1684	Amends official zoning map (Special)
BL2019-1685	Amends official zoning map (Special)
BL2019-1686	Amends official zoning map (Special)
BL2019-1687	Amends official zoning map (Special)
BL2019-1688	Amends official zoning map (Special)
BL2019-1689	Amends official zoning map (Special)
BL2019-1690	Amends official zoning map (Special)
BL2019-1691	Amends official zoning map (Special)
BL2019-1692	Amends official zoning map (Special)
BL2019-1693	Amends official zoning map (Special)
BL2019-1694	Amends official zoning map (Special)
BL2019-1695	Amends official zoning map (Special)
Amdt. 1	Adds §§ 4 and 5 and renumbers subsequent sections and amends § 6 of Ord. BL2019-1695 (Special)
BL2019-1696	Amends official zoning map (Special)
BL2019-1697	Amends official zoning map (Special)
BL2019-1698	Amends official zoning map (Special)
BL2019-1699	Amends official zoning map (Special)
BL2019-1700	Amends official zoning map (Special)
BL2019-1701	Amends official zoning map (Special)
BL2019-1702	Amends official zoning map (Special)
BL2019-1703	Amends official zoning map (Special)
BL2019-1704	Amends official zoning map (Special)
BL2019-1705	Amends official zoning map (Special)
BL2019-1706	(Withdrawn)
BL2019-1707	(Failed)
BL2019-1708	Grants a franchise to Zayo Group, LLC to construct, operate, and maintain a telecommunications system (Special)
BL2019-1709	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-1710	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-1711	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-1712	Abandons existing sanitary sewer main, a sanitary sewer manhole and easements and to accept new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2019-1713	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2019-1714	Abandons existing public water mains and a fire hydrant assembly and to accept new public water main and a fire hydrant assembly (Special)
BL2019-1715	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2019-1716	Abandons existing sanitary sewer main, sanitary sewer manholes and easements and to accept new sanitary sewer and water mains, sanitary sewer manholes, a fire hydrant assembly and easements (Special)
BL2019-1717	Abandons existing water main and to accept new water main, a fire hydrant assembly and sanitary sewer manholes (Special)
BL2019-1718	Amends official zoning map (Special)
BL2019-1719	Amends official zoning map (Special)
BL2019-1720	Amends official zoning map (Special)
BL2019-1721	Amends official zoning map (Special)
BL2019-1722	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2019-1723	(Withdrawn)
BL2019-1724	Amends official zoning map (Special)
BL2019-1725	Amends official zoning map (Special)
BL2019-1726	(Withdrawn)
BL2019-1727	Amends official zoning map (Special)
BL2019-1728	(Withdrawn)
BL2019-1729	(Withdrawn)
BL2019-1730	(Withdrawn)
BL2019-1731	Amends §§ 4.12.010, 4.12.030; adds § 4.20.105 (4.12, 4.20)
BL2019-1732	Amends §§ 7.08.010, 7.08.090 (7.08)
BL2019-1733	(Withdrawn)
BL2019-1734	Amends an existing sewer contract and authorizing the granting of a permanent easement to Harpeth Valley Utilities District of Davidson and Williamson Counties, Tennessee (Special)
BL2019-1735	Establishes a Public Stormwater Quality Project Fund (Special)
BL2019-1736	Abandons existing water mains and fire hydrant assemblies, to accept new water mains and fire hydrant assemblies, and to acquire easements through negotiation, condemnation and acceptance (Special)
BL2019-1737	Abandons existing public sanitary and combination sewer mains, combination sewer manholes/inlets, and easements and to accept new sanitary sewer and combination sewer mains, sanitary sewer manholes, combination sewer manholes/inlets, and easements (Special)
BL2019-1738	Abandons existing public water and sanitary sewer main, manholes, and easements and to accept new water main, fire hydrant assemblies, sanitary sewer manhole and easements (Special)
BL2019-1739	Acquires permanent and temporary easements through negotiations, condemnation, and acceptance (Special)
BL2019-1740	Amends §§ 1.01.010—1.01.050 (1.01)
BL2019-1741	Amends official zoning map (Special)
BL2019-1742	Amends official zoning map (Special)
BL2019-1743	Amends official zoning map (Special)
BL2019-1744	Amends official zoning map (Special)
BL2019-1745	Amends official zoning map (Special)
BL2019-1746	Amends official zoning map (Special)
BL2019-1747	Amends official zoning map (Special)
BL2019-1748	Amends official zoning map (Special)
BL2019-1749	Amends official zoning map (Special)
BL2019-1750	Amends official zoning map (Special)
BL2019-1751	Amends official zoning map (Special)
BL2019-1752	Amends official zoning map (Special)
BL2019-1753	Amends official zoning map (Special)
BL2019-1754	Amends official zoning map (Special)
BL2019-1755	Amends official zoning map (Special)
BL2019-1756	Amends official zoning map (Special)
BL2019-1757	(Withdrawn)
BL2019-1758	Amends official zoning map (Special)
BL2019-1759	Amends official zoning map (Special)
BL2019-1760	Amends official zoning map (Special)
BL2019-1761	(Withdrawn)
BL2019-1762	Amends official zoning map (Special)
BL2019-1763	Amends official zoning map (Special)
BL2019-1764	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2019-1764 (Special)
BL2019-1765	Amends official zoning map (Special)
BL2019-1766	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3 and 4 of Ord. BL2019-1766 (Special)
BL2019-1767	(Withdrawn)
BL2019-1768	Amends official zoning map (Special)
BL2019-1769	(Failed)
BL2019-1770	Amends official zoning map (Special)
BL2019-1771	Amends official zoning map (Special)
BL2019-1772	Amends official zoning map (Special)
BL2019-1773	Amends official zoning map (Special)
BL2019-1774	Amends official zoning map (Special)
BL2019-1775	(Withdrawn)
BL2019-1776	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2019-1776 (Special)
BL2019-1777	(Withdrawn)
BL2019-1778	Amends official zoning map (Special)
BL2019-1779	Amends official zoning map (Special)
BL2019-1780	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2019-1780 (Special)
BL2019-1781	(Withdrawn)
BL2019-1782	Amends official zoning map (Special)
BL2019-1783	Amends official zoning map (Special)
BL2019-1784	Amends official zoning map (Special)
BL2019-1785	Amends official zoning map (Special)
BL2019-1786	(Withdrawn)
BL2019-1787	Amends official zoning map (Special)
BL2019-1788	Amends official zoning map (Special)
BL2019-1789	Amends official zoning map (Special)
BL2019-1790	Amends official zoning map (Special)
BL2019-1791	Abandons existing public sanitary sewer main, manholes, fire hydrant assembly and easements and to accept new public sanitary sewer main, sanitary sewer manholes, fire hydrant assemblies, and easements (Special)
BL2019-1792	Abandons existing public sanitary sewer main and a sanitary sewer manhole and to accept new water main, a fire hydrant assembly and a sanitary sewer manhole (Special)

Ordinance Number	Disposition
BL2019-1793	Abandons existing sanitary sewer easement, and to accept new water mains, fire hydrant assemblies, sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2019-1794	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2019-1795	Abandons existing water pumping station, brick building, and associated easement and to retain the remaining 10-foot public utility easement (Special)
BL2019-1796	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-1797	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-1798	Acquires through negotiations, condemnation, or fee simple purchase, a parcel of real property known as 1012 Apex Street (Special)
BL2019-1799	Designates honorary street name (Special)
BL2019-1800	Amends § 2.178.080 (2.178)
BL2019-1	Amends §§ 1.01.030, 12.08.170 (1.01, 12.08)
BL2019-2	Amends § 2.212.030 (2.212)
Amdt. 1	Adds § 2 and renumbers subsequent sections of Ord. BL2019-2 (Special)
BL2019-3	Adds §§ 5.20.100, 17.40.410.D. (5.20, 17.40)
Amdt. 1	Adds recital and attaches Exhibit A to Ord. BL2019-3 (Special)
Amdt. 2	Amends § 3 of Ord. BL2019-3 (Special)
BL2019-4	(Failed)
BL2019-5	Amends § 13.08.025 (13.08)
BL2019-6	Amends §§ 17.16.070.U., 17.16.250.E., 17.40.340.A. (17.16, 17.40)
BL2019-7	(Deferred indefinitely)
BL2019-8	(Withdrawn)
BL2019-9	Approves a lease agreement with the Metropolitan Nashville Airport Authority (Special)
BL2019-10	Approves a contract with the United Way of Metropolitan Nashville (Special)
BL2019-11	Approves amendment three to lease agreement authorized by Ord. BL2007-1544 (Special)
Amdt. 1	Renumbers § 3 as § 4 and adds new § 3 to Ord. BL2019-11 (Special)
Amdt. 2	Renumbers § 4 as § 5 and adds new § 4 to Ord. BL2019-11 (Special)
Amdt. 3	Amends first recital and §§ 3, 4 of Ord. BL2019-11 (Special)
BL2019-12	Approves a lease agreement with the Sports Authority of the Metropolitan Government of Nashville and Davidson County (Special)
Amdt. 1	Amends Ord. BL2019-12 (Special)
BL2019-13	Approves agreement with Vanderbilt University Medical Center (Special)
BL2019-14	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-15	Designates honorary street name (Special)
BL2019-16	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-17	Abandons existing sanitary sewer main, sanitary sewer manhole and easements (Special)
BL2019-18	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2019-19	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2019-20	Abandons existing sanitary sewer easement rights (Special)
BL2019-21	Abandons existing sanitary sewer main and easements and accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2019-22	Amends official zoning map (Special)
BL2019-23	Amends official zoning map (Special)
BL2019-24	Amends official zoning map (Special)
BL2019-25	Amends official zoning map (Special)
BL2019-26	Amends official zoning map (Special)
BL2019-27	Amends official zoning map (Special)
BL2019-28	Amends official zoning map (Special)
BL2019-29	Amends official zoning map (Special)
BL2019-30	Amends § 16.04.200.B. (16.04)
Amdt. 1	Amends § 1 of Ord. BL2019-30 (16.04)
BL2019-31	(Withdrawn)
BL2019-32	Amends §§ 17.04.060, 17.08.030, 17.16.105, 17.20.030 (17.04, 17.08, 17.16, 17.20)
BL2019-33	Amends BL2019-1626, property tax relief program (Special)
BL2019-34	Approves an amendment to an existing conservation easement and accepts a temporary construction easement (Special)
BL2019-35	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-36	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-37	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-38	Amends the geographic information systems street and alley centerline layer (Special)

Ordinance Number	Disposition
BL2019-39	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2019-40	Abandons existing public water main and easements and accepts new public sewer and water mains, sanitary sewer manholes and a fire hydrant assembly and easements (Special)
BL2019-41	Abandons existing easement rights (Special)
BL2019-42	Amends § 2.24.225 (2.24)
BL2019-43	Adds § 5.04.115 (5.04)
Amdt. 1	Amends § 1 of Ord. BL2019-43 (5.04)
BL2019-44	Amends § 10.16.170.B. (10.16)
BL2019-45	Amends §§ 15.20.030.A., 15.20.045.A., 15.20.110, 15.32.010, 15.32.020, 15.36.020.A., 15.36.030.D., 15.36.040.A., 15.44.010, 15.44.020, 15.48.220.B., 15.48.300; adds §§ 15.48.035, 15.52.040.C. (15.20, 15.32, 15.36, 15.44, 15.48, 15.52)
Amdt. A	Amends §§ 5 and 10 of Ord. BL2019-45 (15.32, 15.44)
BL2019-46	Adds §§ 15.32.210, 15.44.070 (15.32, 15.44)
BL2019-47	(Deferred indefinitely)
BL2019-48	Amends § 17.16.250.D. (17.16)
Amdts. 1—5	Amends § 1 of Ord. BL2019-48 (17.16)
BL2019-49	Adds § 5.20.110 (5.20)
BL2019-50	(Deferred indefinitely)
BL2019-51	Approves the transfer of franchise rights (Special)
BL2019-52	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-53	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2019-54	Abandons existing easement rights (Special)
BL2019-55	Abandons existing sanitary sewer main, sanitary sewer manhole and easements (Special)
BL2019-56	Abandons existing sanitary sewer main, sanitary sewer manholes, and easements and accepts new public water and sanitary sewer mains, sanitary sewer manholes, fire hydrant assemblies, and easements (Special)
BL2019-57	Abandons existing public water and sanitary sewer mains and easements, to raise existing sanitary sewer manhole rims, and accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes, and easements (Special)
BL2019-58	Amends official zoning map (Special)
BL2019-59	Amends official zoning map (Special)
BL2019-60	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2019-60 (Special)
BL2019-61	Amends official zoning map (Special)
BL2019-62	Amends official zoning map (Special)
BL2019-63	Amends official zoning map (Special)
BL2019-64	Amends official zoning map (Special)
BL2019-65	(Deferred indefinitely)
BL2019-66	Amends official zoning map (Special)
BL2019-67	Amends official zoning map (Special)
BL2019-68	Amends official zoning map (Special)
BL2019-69	Amends official zoning map (Special)
BL2019-70	Amends official zoning map (Special)
BL2019-71	(Withdrawn)
BL2019-72	(Withdrawn)
BL2019-73	Amends official zoning map (Special)
BL2019-74	Adds § 2.144.050 (2.144)
BL2019-75	(Deferred indefinitely)
BL2019-76	(Deferred indefinitely)
BL2019-77	Adds § 5.04.150 (5.04)
BL2019-78	Amends § 17.16.070.U. (17.16)
Amdt.	Amends § 1 of Ord. BL2019-78 (17.16)
BL2019-79	Amends § 6.28.030.A.2.b. (6.28)
BL2019-80	Authorizes the granting of two permanent easements (Special)
BL2019-81	Abandons existing public sanitary sewer main and easements and accepts new sanitary sewer mains, sanitary sewer manholes, fire hydrant assembly, and easements (Special)
BL2019-82	Abandons existing public water main and accepts new water main (Special)
BL2019-83	Accepts a new public sanitary sewer main, sanitary sewer manholes, and easements (Special)
BL2019-84	Accepts new sanitary sewer main, sanitary sewer manholes, and easements (Special)
BL2019-85	Accepts new sanitary sewer main, sanitary sewer manholes, and easements (Special)
BL2019-86	Abandons existing easement rights (Special)
BL2019-87	Abandons existing public water main and easements and accepts new water and sanitary sewer mains, fire hydrant assembly, sanitary sewer manhole and easements (Special)
BL2019-88	Accepts new sanitary sewer main, sanitary sewer manholes, and easements (Special)
BL2019-89	Amends official zoning map (Special)
BL2019-90	Amends official zoning map (Special)
BL2019-91	Amends official zoning map (Special)
BL2019-92	Amends official zoning map (Special)
BL2019-93	Amends official zoning map (Special)
BL2019-94	Designates public property within specified areas of downtown as a temporary "Special Event Zone" (Special)

Ordinance Number	Disposition
BL2019-95	Amends §§ 16.08.012.M., 16.12.130.N. (16.08, 16.12)
BL2019-96	Adopts the geographic information systems street and alley centerline layer (Special)
BL2019-97	Approves and authorizes the director of public property administration, or his designee, to accept of donation of real property including an existing water pumping station, and the surrounding pump house building (Special)
BL2019-98	Abandons existing water main and easements and accepts new water mains, fire hydrant assemblies, and easements (Special)
BL2019-99	Abandons existing public water main and accepts new public water main (Special)
BL2019-100	Abandons existing public water main, one fire hydrant assembly, and easements and accepts a new fire hydrant assembly and easements (Special)
BL2019-101	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements for the Battlefield Drive Stormwater Improvement Project (Special)
BL2019-102	(Withdrawn)
BL2019-103	Amends official zoning map (Special)
BL2019-104	Amends official zoning map (Special)
BL2019-105	Amends official zoning map (Special)
BL2019-106	Amends official zoning map (Special)
BL2019-107	Amends official zoning map (Special)
BL2019-108	Amends official zoning map (Special)
BL2019-109	Amends § 12.62.020 (12.62)
Amdt. 1	Amends § 2 of Ord. BL2019-109 (12.62)
Amdt. 2	Amends § 2 of Ord. BL2019-109 (12.62)
BL2019-110	Amends § 13.08.015.B. (13.08)
BL2019-111	Amends §§ 17.08.010, 17.08.030, 17.08.030, 17.12.020, 17.12.030, 17.12.035, 17.12.040, 17.12.070, 17.16.050, 17.16.070, 17.16.080, 17.16.090, 17.16.120, 17.16.190, 17.20.040, 17.20.080, 17.20.180, 17.24.140, 17.24.150, 17.24.160, 17.24.230, 17.28.030, 17.28.102, 17.32.050, 17.32.070, 17.32.100, 17.32.110, 17.32.120, 17.32.130, 17.32.145, 17.32.150, 17.36.540, 17.40.480, 17.40.670 (17.08, 17.12, 17.16, 17.20, 17.24, 17.28, 17.32, 17.36, 17.40)
BL2019-112	Amends the geographic information systems street and alley centerline layer (Special)
BL2019-113	Amends §§ 1.01.010—1.01.050 (1.01)
BL2020-114	(Deferred indefinitely)
BL2020-115	(Failed)
BL2020-116	Adds §§ 13.27.010, 13.27.020 (13.27)
Amdt. 1	Renumbers § 3 as § 4 and adds new § 3 to Ord. BL2020-116 (Special)
BL2020-117	Adds § 17.20.040.G. (17.20)
BL2020-118	Approves an agreement between the metropolitan government, acting by and through the Department of Parks and Recreation ("Parks"), and Memphis Basketball, LLC (Special)
BL2020-119	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-120	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-121	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-122	Amends official zoning map (Special)
BL2020-123	Amends official zoning map (Special)
BL2020-124	Amends official zoning map (Special)
BL2020-125	Amends official zoning map (Special)
BL2020-126	Amends official zoning map (Special)
BL2020-127	(Deferred indefinitely)
BL2020-128	Amends official zoning map (Special)
BL2020-129	Amends official zoning map (Special)
BL2020-130	Amends official zoning map (Special)
BL2020-131	Amends official zoning map (Special)
BL2020-132	(Deferred indefinitely)
BL2020-133	(Deferred indefinitely)
BL2020-134	Amends official zoning map (Special)
BL2020-135	Amends official zoning map (Special)
BL2020-136	Amends official zoning map (Special)
BL2020-137	Amends official zoning map (Special)
BL2020-138	Amends official zoning map (Special)
BL2020-139	(Deferred indefinitely)
BL2020-140	(Deferred indefinitely)
BL2020-141	Amends official zoning map (Special)
BL2020-142	Amends official zoning map (Special)
BL2020-143	Amends official zoning map (Special)
BL2020-144	Amends official zoning map (Special)
BL2020-145	Amends official zoning map (Special)
BL2020-146	Amends official zoning map (Special)
BL2020-147	Repeals §§ 2.196.010—2.196.100; adds §§ 2.196.010—2.196.130; amends § 2.222.040.A.5. (2.196, 2.222)
BL2020-148	(Deferred indefinitely)
BL2020-149	Adds Ch. 11.22 and § 11.22.010 (11.22)
Amdt. 1	Amends § 1 of Ord. BL2020-149 (11.22)
BL2020-150	Amends Ordinance No. BL2019-1491 (Special)
Amdt. 1	Amends § 1 of Ord. BL2020-150 (Special)
BL2020-151	Adds §§ 17.36.570—17.36.620; amends § 17.40.740.C.3. (17.36, 17.40)
BL2020-152	Designates honorary street name (Special)
BL2020-153	Establishes a new fee structure for sidewalk waivers (Special)

Ordinance Number	Disposition
BL2020-154	Approves amendment 2 to the lease agreement between the Metropolitan Government of Nashville and Davidson County, through the Department of Public Works, and OP 611 Commerce Property, LLC (Special)
BL2020-155	Authorizes installation, construction and maintenance of underground encroachments (Special)
BL2020-156	Authorizes installation, construction and maintenance of underground encroachments (Special)
BL2020-157	Authorizes installation, construction and maintenance of underground encroachments (Special)
BL2020-158	Abandons existing easement rights (Special)
BL2020-159	Abandons existing easement rights (Special)
BL2020-160	Abandons existing sanitary sewer main, sanitary sewer manholes, and easements and accepts new sanitary sewer mains, sanitary sewer manholes, and easements (Special)
BL2020-161	Abandons existing sanitary sewer main, a sanitary sewer manhole and easements (Special)
BL2020-162	Amends § 10.18.010; adds § 10.18.046 (10.18)
Amdt. 1	Amends § 2 of Ord. BL2020-162 (10.18)
BL2020-163	Abandons existing public sanitary sewer main, and easements and accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2020-164	Abandons existing public sanitary sewer main, sanitary sewer manholes and easements and accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2020-165	Abandons existing water main and easements and accepts new water main and easements (Special)
BL2020-166	Abandons existing public utility and drainage easements (Special)
BL2020-167	Abandons existing public water and sanitary sewer main, sanitary sewer manholes and easements and accepts new water and sanitary sewer mains, sanitary sewer manholes, potential water main relocations and easements (Special)
BL2020-168	Accepts new public water main (Special)
BL2020-169	Amends official zoning map (Special)
BL2020-170	Amends official zoning map (Special)
BL2020-171	Amends official zoning map (Special)
BL2020-172	Amends official zoning map (Special)
BL2020-173	Amends official zoning map (Special)
BL2020-174	Amends official zoning map (Special)
BL2020-175	Amends official zoning map (Special)
BL2020-176	Amends official zoning map (Special)
BL2020-177	Amends official zoning map (Special)
BL2020-178	Amends official zoning map (Special)
BL2020-179	(Deferred indefinitely)
BL2020-180	Amends official zoning map (Special)
BL2020-181	Amends official zoning map (Special)
BL2020-182	Amends official zoning map (Special)
BL2020-183	Amends official zoning map (Special)
BL2020-184	(Deferred indefinitely)
BL2020-185	Amends §§ 5.10.010, 5.10.020 (5.10)
BL2020-186	Amends § 5.12.140.B. (5.12)
BL2020-187	Amends §§ 5.12.060.A.(4), 17.16.070.U., 17.16.250.E.; adds §§ 6.28.030, 6.28.035 (5.12, 6.28, 17.16)
Amdt.	Amends § 3 of Ord. BL2020-187 (6.28)
BL2020-188	Adds §§ 13.08.090, 13.12.200; amends § 17.20.060.G. (13.08, 13.12, 17.20)
BL2020-189	Names certain facilities at the Howard Office Building in honor of Charlie Cardwell (Special)
BL2020-190	Grants the purchasing agent the authority to extend the terms of contract number 350322 (Special)
BL2020-191	Approves participation agreement with Arty, LLC (Special)
BL2020-192	Accepts new sanitary sewer main and sanitary sewer manholes for three properties located at 1400, 1404, and 1408 Old Hickory Boulevard (Special)
BL2020-193	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-194	Amends official zoning map (Special)
BL2020-195	Amends official zoning map (Special)
BL2020-196	Repeals §§ 9.10.010, 9.10.020, 9.20.010—9.20.060, 9.30.010—9.30.040; adds §§ 9.10.010—9.10.030, 9.20.010—9.20.060, 9.30.010—9.30.040 (9.10, 9.20, 9.30)
BL2020-197	(Failed)
BL2020-198	Accepts a donation of real property located at 128 Lifeway Plaza and 1008 Dr. Martin Luther King Jr. Boulevard for use as part of the parks system (Special)
BL2020-199	Amends Exhibit 1 to BL2017-1000 to include an additional three tracts (Special)
BL2020-200	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation for use in public projects (Special)

Ordinance Number	Disposition
BL2020-201	Authorizes installation, construction and maintenance of underground encroachments (Special)
BL2020-202	Approves an agreement between the metropolitan government, acting by and through the Department of Parks and Recreation ("Parks"), and Belmont University (Special)
BL2020-203	Authorizes installation, construction and maintenance of underground encroachments (Special)
BL2020-204	Authorizes installation, construction and maintenance of underground encroachments (Special)
BL2020-205	Authorizes installation, construction and maintenance of underground encroachments (Special)
BL2020-206	Authorizes installation, construction and maintenance of underground encroachments (Special)
BL2020-207	Authorizes installation, construction and maintenance of underground encroachments (Special)
BL2020-208	Authorizes installation, construction and maintenance of underground encroachments (Special)
BL2020-209	Amends official zoning map (Special)
BL2020-210	(Deferred indefinitely)
BL2020-211	Amends official zoning map (Special)
BL2020-212	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2020-212 (Special)
BL2020-213	Amends official zoning map (Special)
BL2020-214	Amends official zoning map (Special)
BL2020-215	Amends official zoning map (Special)
BL2020-216	(Deferred indefinitely)
BL2020-217	Amends official zoning map (Special)
BL2020-218	Amends official zoning map (Special)
BL2020-219	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2020-219 (Special)
BL2020-220	(Deferred indefinitely)
BL2020-221	(Deferred indefinitely)
BL2020-222	Authorizes installation, construction and maintenance of underground encroachments (Special)
BL2020-223	(Withdrawn)
BL2020-224	(Deferred indefinitely)
BL2020-225	Amends § 13.24.400 (13.24)
BL2020-226	(Withdrawn)
BL2020-227	Authorizes the granting of permanent and temporary construction easements (Special)
BL2020-228	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-229	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-230	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-231	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-232	(Deferred indefinitely)
BL2020-233	Amends official zoning map (Special)
BL2020-234	Provides for the waiver of certain building permit fees for the repair or rebuilding of property damaged as a result of the March 3, 2020, tornado (Special)
BL2020-235	(Deferred indefinitely)
BL2020-236	Amends §§ 16.04.150, 16.28.230 (16.04, 16.28)
BL2020-237	Approves amendment 2 to the contract between Waste Management, Inc. of Tennessee and the metropolitan government (Special)
BL2020-238	Approves a lease agreement between the metropolitan government and Midwest Communications, Inc. (Special)
BL2020-239	Authorizes the granting of permanent and temporary construction easements (Special)
BL2020-240	Abandons existing easement rights (Special)
BL2020-241	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2020-242	Authorizes the metropolitan government, acting by and through the Metropolitan Department of Water and Sewerage Services, to enter into an agreement with Cumberland River Compact ("CRC") (Special)
BL2020-243	Accepts new sanitary sewer mains and sanitary sewer manholes (Special)
BL2020-244	Accepts water main, a fire hydrant assembly, a sanitary sewer manhole and easements (Special)
BL2020-245	Accepts new water mains and easements (Special)
BL2020-246	Abandons existing public sanitary sewer force mains, sanitary sewer manholes and easements, and accepts new water and sanitary sewer mains and force mains, fire hydrant assemblies, sanitary sewer manholes, and easements (Special)
BL2020-247	Abandons existing public sanitary sewer main and easements and accepts new water and sanitary sewer mains, fire hydrant assembly, sanitary sewer manholes and easements (Special)
BL2020-248	Abandons existing brick sanitary sewer main and easements and accepts new sanitary sewer mains, sanitary sewer manholes and easements (Special)

Ordinance Number	Disposition
BL2020-249	Accepts new sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2020-250	Accepts new water and sanitary sewer mains, a fire hydrant assembly, sanitary sewer manholes and easements (Special)
BL2020-251	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2020-252	Accepts new water and sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2020-253	Amends official zoning map (Special)
BL2020-254	Amends official zoning map (Special)
BL2020-255	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2020-255 (Special)
BL2020-256	Amends official zoning map (Special)
BL2020-257	Amends official zoning map (Special)
BL2020-258	Amends official zoning map (Special)
BL2020-259	Amends official zoning map (Special)
BL2020-260	Amends official zoning map (Special)
BL2020-261	Amends official zoning map (Special)
Amdt. 1	Substitutes the plans associated with Ord. BL2020-261 for those contained in Exhibit A (Special)
BL2020-262	Amends official zoning map (Special)
BL2020-263	Amends official zoning map (Special)
BL2020-264	Amends official zoning map (Special)
BL2020-265	Amends official zoning map (Special)
BL2020-266	Amends official zoning map (Special)
BL2020-267	Amends official zoning map (Special)
BL2020-268	Amends official zoning map (Special)
BL2020-269	Amends official zoning map (Special)
BL2020-270	Amends official zoning map (Special)
BL2020-271	Amends official zoning map (Special)
BL2020-272	(Withdrawn)
BL2020-273	Amends official zoning map (Special)
BL2020-274	Amends official zoning map (Special)
BL2020-275	Amends official zoning map (Special)
BL2020-276	(Failed)
BL2020-277	Amends § 17.40.660.D. (17.40)
BL2020-278	Approves a lease agreement between the metropolitan government and City Road Chapel United Methodist Church (Special)
BL2020-279	(Deferred indefinitely)
BL2020-280	Authorizes installation, construction and maintenance of underground and aerial encroachments (Special)
BL2020-281	Accepts new public sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2020-282	Abandons existing public water main and easements (Special)
BL2020-283	Abandons existing public water main and accepts new public water main and fire hydrant assembly (Special)
BL2020-284	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2020-285	Requires employees of essential businesses interfacing with the public to wear appropriate face coverings (Special)
BL2020-286	Budget ordinance for fiscal year 2021 (Special)
BL2020-287	Establishes tax levy in the General Services District for 2020—2021 (Special)
BL2020-288	Adds § 17.20.120.C.2.c. (17.20)
BL2020-289	Creates the positions of Environmental Compliance Supervisor and Water Quality Supervisor (Special)
BL2020-290	(Failed)
BL2020-291	Amends official zoning map (Special)
BL2020-292	Amends official zoning map (Special)
BL2020-293	Amends official zoning map (Special)
BL2020-294	(Withdrawn)
BL2020-295	Repeals §§ 2.175.010—2.175.040; adds § 2.108.050.C. (2.108, 2.175)
BL2020-296	Designates public property within specified areas of downtown as a temporary "Special Event Zone" (Special)
BL2020-297	Abandons existing public water main easement and accepts a new fire hydrant assembly (Special)
BL2020-298	Adopts capital improvements budget and program 2020—2021 through 2025—2026 (Special)
Amdt. A	Adds project to Ord. BL2020-298 (Special)
BL2020-299	(Withdrawn)
BL2020-300	Amends §§ 9.30.010, 9.30.020 (9.30)
BL2020-301	Amends § 10.18.020 (10.18)
BL2020-302	Amends § 13.08.015.D. (13.08)
BL2020-303	Approves the enrollment of the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Nashville Police Department, in the CARFAX Investigative Tools Program and CARFAX Crash Report Distribution Platform (Special)
BL2020-304	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-305	Accepts the donation of certain properties located on West Hamilton Avenue from Piedmont Natural Gas and approves the conveyance of easements across certain other properties to Piedmont Natural Gas (Special)
BL2020-306	Amends §§ 1.01.010—1.01.050 (1.01)

Ordinance Number	Disposition
BL2020-307	Abandons existing sanitary sewer main, a sanitary sewer manhole and easements, and accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2020-308	Authorizes Vanderbilt University to install, construct and maintain underground encroachments in the right-of-way (Special)
BL2020-309	Authorizes SMH Holdings, LLC to install, construct and maintain underground encroachments in the right-of-way (Special)
BL2020-310	Amends official zoning map (Special)
BL2020-311	Amends official zoning map (Special)
BL2020-312	Amends official zoning map (Special)
BL2020-313	Amends official zoning map (Special)
BL2020-314	Amends official zoning map (Special)
BL2020-315	Amends official zoning map (Special)
BL2020-316	Amends official zoning map (Special); amends § 17.36.620.A. (17.36)
BL2020-317	Amends official zoning map (Special)
BL2020-318	Amends official zoning map (Special)
BL2020-319	Amends official zoning map (Special)
BL2020-320	Amends official zoning map (Special)
BL2020-321	(Failed)
BL2020-322	Adds § 2.44.045 (2.44)
Amdt. 1	Amends § 1 of Ord. BL2020-322 (2.44)
BL2020-323	(Withdrawn)
BL2020-324	Amends § 7.16.110.D. (7.16)
Amdt. 1	Amends § 1 of Ord. BL2020-324 (7.16)
BL2020-325	Approves a lease agreement between the Metropolitan Government of Nashville and Davidson County and the Episcopal School of Nashville (Special)
BL2020-326	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-327	Authorizes 900 Church Street, LLC, to install, construct and maintain underground and aerial encroachments in the right-of way (Special)
BL2020-328	Amends official zoning map (Special)
BL2020-329	(Withdrawn)
BL2020-330	(Withdrawn)
BL2020-331	(Withdrawn)
BL2020-332	(Withdrawn)
BL2020-333	Adds §§ 12.61.010, 12.61.020 (12.61)
Amdt. 1	Amends fourth recital and § 1 of Ord. BL2020-333 (12.61)
BL2020-334	Amends § 17.37.010 (17.37)
BL2020-335	Adds § 2.08.110 (2.08)
Amdt.	Amends § 1 of Ord. BL2020-335 (2.08)
BL2020-336	Requires the director of finance to provide recommendations to the metropolitan council regarding revisions to the metropolitan government's debt management policy (Special)
BL2020-337	Approves amendment 1 to the contract for program management services between Gobbell Hays Partners, Inc. and the Metropolitan Government of Nashville and Davidson County, which extends the contract term for twenty-eight months (Special)
BL2020-338	Designates honorary street name (Special)
BL2020-339	Authorizes the acceptance or acquisition of easements by negotiation or condemnation for the purpose of construction, operation, maintenance, repair, replacement and inspection of a proposed streambank stabilization project (Special)
BL2020-340	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2020-341	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2020-342	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2020-343	Abandons existing public sanitary sewer mains, sanitary sewer manholes and easements, and accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2020-344	Abandons existing public water main and easements, and accepts new water main, sanitary sewer force main and easements (Special)
BL2020-345	Accepts a sanitary sewer manhole (Special)
BL2020-346	Abandons existing public sanitary sewer main, sanitary sewer manholes and easements, raises existing sanitary sewer manholes, and accepts new public sewer main, sanitary manholes and easements (Special)
BL2020-347	Abandons existing public water main and easements, and accepts new public water main and easements (Special)
BL2020-348	Abandons existing sanitary sewer main and easements, and accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)

Ordinance Number	Disposition
BL2020-349	Abandons existing public sanitary sewer mains, sanitary sewer manholes and easements, and accepts new sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2020-350	Abandons existing water mains and easements, and accepts new water mains, fire hydrant assembly and easements (Special)
BL2020-351	Abandons existing sanitary sewer easement rights (Special)
BL2020-352	Abandons existing public sanitary sewer main, sanitary sewer manhole, and easements, and accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2020-353	Abandons existing sanitary sewer main and easements, and accepts a new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2020-354	Accepts new sanitary sewer main and sanitary sewer manholes (Special)
BL2020-355	Abandons an existing water main and easements and accepts a new water main and easements (Special)
BL2020-356	Abandons an existing water main and easements, and accepts a new water main, a fire hydrant assembly, a sanitary sewer manhole and easements (Special)
BL2020-357	Abandons existing public sanitary sewer main, a sanitary sewer manhole and easements, and accepts a new sanitary sewer main, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2020-358	Abandons existing public sanitary sewer main and easements, and accepts sanitary sewer manhole and easement (Special)
BL2020-359	Abandons existing water and sanitary sewer mains and easements, and accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2020-360	Abandon existing water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manhole and easements, and accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2020-361	Abandons existing sanitary sewer main, sanitary sewer manholes, fire hydrant assembly and easements, and accepts new public sanitary sewer mains, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2020-362	Amends official zoning map (Special)
BL2020-363	Amends official zoning map (Special)
BL2020-364	Amends official zoning map (Special)
BL2020-365	Amends official zoning map (Special)
BL2020-366	Amends official zoning map (Special)
BL2020-367	Amends official zoning map (Special)
BL2020-368	Amends official zoning map (Special)
BL2020-369	Amends official zoning map (Special)
BL2020-370	Amends official zoning map (Special)
BL2020-371	Amends official zoning map (Special)
BL2020-372	Amends official zoning map (Special)
BL2020-373	Amends official zoning map (Special)
BL2020-374	Amends official zoning map (Special)
BL2020-375	Amends official zoning map (Special)
BL2020-376	Amends official zoning map (Special)
BL2020-377	Amends Ordinance No. BL2020-234, as amended, to extend the time period for the waiver of certain building permit fees for the repair or rebuilding of property damaged as a result of the March 3, 2020 tornado (Special)
BL2020-378	(Deferred indefinitely)
BL2020-379	Adds § 5.16.085 (5.16)
Amdt.	Amends third recital clause of Ord. BL2020-379 (Special)
BL2020-380	Amends § 12.48.020; adds § 12.48.025 (12.48)
BL2020-381	Authorizes the metropolitan government, acting by and through the Metropolitan Department of Water and Sewerage Services, to enter into an agreement with Great Tennessee Land Co. (Special)
BL2020-382	Authorizes the metropolitan government, acting by and through the Metropolitan Department of Water and Sewerage Services to enter into an agreement with Nashville Propco, LLC (Special)
BL2020-383	Amends §§ 1.01.010—1.01.050 (1.01)
BL2020-384	Amends official zoning map (Special)
BL2020-385	Amends official zoning map (Special)
BL2020-386	Amends §§ 2.24.225, 2.24.230 (2.24)
Amdt. 1	Amends § 2 of Ord. BL2020-386 (2.24)
Amdt. 2	Amends § 2 of Ord. BL2020-386 (2.24)
BL2020-387	Amends § 3.24.010.C. (3.24)
Amdts. 1—3	Amends § 1 of Ord. BL2020-387 (3.24)
BL2020-388	Amends § 16.24.330.K.3. (16.24)
Amdt. 1	Amends § 1 of Ord. BL2020-388 (16.24)
BL2020-389	(Failed)
BL2020-390	Grants a franchise to Google Fiber Tennessee, LLC to construct, operate, and maintain a fiber optic communications system (Special)
BL2020-391	Declares surplus and authorizes the conveyance of a parcel of real property (Special)

Ordinance Number	Disposition
BL2020-392	Authorizes the acquisition of an interest in two parcels of real property and the granting of an easement in those same parcels (Special)
BL2020-393	Abandons existing sanitary sewer main, a sanitary sewer manhole and easements, and accepts a public sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2020-394	Negotiates and accepts permanent and temporary easements (Special)
BL2020-395	Amends official zoning map (Special)
BL2020-396	Amends official zoning map (Special)
BL2020-397	Amends official zoning map (Special)
BL2020-398	Amends official zoning map (Special)
BL2020-399	Amends official zoning map (Special)
BL2020-400	Amends official zoning map (Special)
BL2020-401	Adds § 2.106.010 (2.106)
BL2020-402	Amends §§ 2.196.020, 2.196.030, 2.196.060, 2.196.070, 2.196.100 (2.196)
BL2020-403	Adds § 13.32.165.E. (13.32)
BL2020-404	(Deferred indefinitely)
BL2020-405	Adds § 17.24.060.A.9. (17.24)
BL2020-406	Approves amendment 2 to the contract for staff augmentation services between CBRE Heery, Inc. and the Metropolitan Government of Nashville and Davidson County, which extends the contract term for twelve months and makes certain changes to the scope of services (Special)
BL2020-407	Amends § 4.48.080.A. (4.48)
BL2020-408	Accepts a greenway conservation easement (Special)
BL2020-409	Accepts a greenway conservation easement (Special)
BL2020-410	Declares surplus and authorizes the conveyance of a parcel of real property (Special)
BL2020-411	Authorizes the director of public property to execute quitclaim deed (Special)
BL2020-412	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2020-413	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2020-414	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-415	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-416	Abandons existing public sanitary sewer main, sanitary sewer manhole and easements, and accepts new sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2020-417	Amends official zoning map (Special)
BL2020-418	Amends official zoning map (Special)
BL2020-419	Amends official zoning map (Special)
BL2020-420	(Withdrawn)
BL2020-421	Adds §§ 10.64.011, 13.20.045, 15.64.225, 16.04.175 (10.64, 13.20, 15.64, 16.04)
BL2020-422	Amends § 1.24.030 (1.24)
Amdt. 1	Amends third recital clause and § 1 of Ord. BL2020-422 (1.24)
BL2020-423	Adds § 4.36.020.F. (4.36)
BL2020-424	Adds § 15.64.105 (15.64)
Amdt. 1	Amends §§ 1 and 2 of Ord. BL2020-424 (15.64)
BL2020-425	(Deferred indefinitely)
BL2020-426	Establishes a program for the purpose of providing assistance to low-income elderly residents for the fiscal year 2020-2021 (Special)
BL2020-427	Abandons easement rights (Special)
BL2020-428	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2020-429	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2020-430	Abandons existing water main, fire hydrant assemblies and easements, to relocate existing water main, and to accept new water main, fire hydrant assemblies and easements (Special)
BL2020-431	Abandons existing public water mains and easements, and to accept a new public water main, fire hydrants and easements (Special)
BL2020-432	Abandons existing water mains, fire hydrant assemblies and easements, and to accept new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2020-433	Accepts public sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2020-434	Abandons existing sanitary sewer easement rights (Special)
BL2020-435	Amends official zoning map (Special)
BL2020-436	Amends official zoning map (Special)
BL2020-437	Amends official zoning map (Special)
Amdt. 1	Amends the SP plans of Ord. BL2020-437 (Special)

Ordinance Number	Disposition
BL2020-438	Amends official zoning map (Special)
BL2020-439	Amends official zoning map (Special)
BL2020-440	Amends official zoning map (Special)
BL2020-441	Amends official zoning map (Special)
BL2020-442	Amends official zoning map (Special)
BL2020-443	Amends official zoning map (Special)
BL2020-444	Amends official zoning map (Special)
BL2020-445	Amends official zoning map (Special)
BL2020-446	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2020-446 (Special)
BL2020-447	Amends official zoning map (Special)
BL2020-448	Amends official zoning map (Special)
BL2020-449	Repeals § 2.08.040 (2.08)
BL2020-450	Amends the geographic information systems street and alley centerline layer (Special)
Amdt. 1	Amends § 1 and adds § 3 of Ord. BL2020-450 (Special)
Amdt. 2	Amends § 1 of Ord. BL2020-450 (Special)
BL2020-451	Amends the geographic information systems street and alley centerline layer (Special)
Amdt. 1	Amends § 3 of Ord. BL2020-451 (Special)
BL2020-452	Approves participation agreement with High View Flats, LLC (Special)
BL2020-453	Accepts public sanitary sewer main, a sanitary sewer manhole and easements (Special)
BL2020-454	Adds Ch. 2.232 and §§ 2.232.010, 2.232.020 (2.232)
Amdt. 1	Amends § 1 of Ord. BL2020-454 (2.232)
BL2020-455	Amends § 7.08.030 (7.08)
BL2020-456	Adds §§ 11.22.020—11.22.040 (11.22)
Amdt. 1	Amends § 1 of Ord. BL2020-456 (11.22)
BL2020-457	Amends § 13.08.080.C. (13.08)
BL2020-458	Amends §§ 16.08.010, 16.08.012, 16.08.014, 16.08.016, 16.12.120, 16.12.130, 16.12.140, 16.16.180, 16.16.190, 16.16.230, 16.16.240, 16.16.260, 16.20.040, 16.20.140, 16.20.150, 16.20.154, 16.20.190, 16.20.195, 16.20.410 (16.08, 16.12, 16.16, 16.20)
Amdt. 1	Amends § 1 of Ord. BL2020-458 (16.08)
BL2020-459	Amends § 16.28.190.B. (16.28)
Amdt. 1	Renumbers § 2 as § 3 and adds new § 2 of Ord. BL2020-459 (Special)
BL2020-460	(Deferred indefinitely)
BL2020-461	Creates the positions of Chief Diversity Equity and Inclusion Officer and Workforce Diversity Manager (Special)
BL2020-462	Approves a second amendment to an agreement between the metropolitan government and Plaza 2750, LLC (Special)
BL2020-463	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-464	Amends the geographic information systems street and alley centerline layer (Special)
Amdt. 1	Amends § 1 and Exhibit A of Ord. BL2020-464 (Special)
BL2020-465	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-466	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2020-467	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2020-468	Accepts new public water and sanitary sewer main, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2020-469	Accepts public sanitary sewer mains, sewer manholes and easements (Special)
BL2020-470	Amends official zoning map (Special)
BL2020-471	Amends official zoning map (Special)
BL2020-472	Amends official zoning map (Special)
BL2020-473	Amends official zoning map (Special)
BL2020-474	Amends official zoning map (Special)
BL2020-475	Amends official zoning map (Special)
BL2020-476	Amends official zoning map (Special)
BL2020-477	Amends official zoning map (Special)
BL2020-478	Amends official zoning map (Special)
BL2020-479	(Withdrawn)
BL2020-480	Amends official zoning map (Special)
BL2020-481	Amends official zoning map (Special)
BL2020-482	Amends official zoning map (Special)
BL2020-483	Amends official zoning map (Special)
BL2020-484	Amends official zoning map (Special)
BL2020-485	Amends official zoning map (Special)
BL2020-486	Amends official zoning map (Special)
BL2020-487	Amends official zoning map (Special)
BL2020-488	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2020-488 (Special)
BL2020-489	Amends official zoning map (Special)
BL2020-490	Amends official zoning map (Special)
Amdt. 1	Amends the SP plans and § 4 of Ord. BL2020-490 (Special)
BL2020-491	Extends the boundaries of the Urban Services District (Special)
Amdt. 1	Amends § 1 of Ord. BL2020-491 (Special)
BL2020-492	Amends § 12.36.110.C. (12.36)
BL2020-493	Amends § 12.40.190.B. (12.40)
BL2020-494	(Withdrawn)
BL2020-495	Amends §§ 1.01.010—1.01.050 (1.01)
BL2020-496	Abandons existing public sanitary sewer main, sanitary sewer manhole and easements, and to accept new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2020-497	Accepts new public water mains, fire hydrant assemblies and easements (Special)

Ordinance Number	Disposition
BL2020-498	Abandons existing public water main, and to accept new public water main, and a fire hydrant assembly (Special)
BL2020-499	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes, and easements (Special)
BL2020-500	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (special)
BL2020-501	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes, and easements (Special)
BL2020-502	Amends official zoning map (Special)
BL2020-503	Amends § 4.12.200 (4.12)
BL2020-504	(Withdrawn)
BL2020-505	(Withdrawn)
BL2020-506	Approves agreement with Cheekwood Botanical Gardens and Museum of Art (Special)
BL2020-507	Accepts a contribution from ECG Belcourt, LLC (Special)
BL2020-508	Accepts a contribution from The National HealthCare Corporation and Stephens Development Group (Special)
BL2020-509	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-510	Abandons existing easement rights (Special)
BL2020-511	Abandons existing easement rights (Special)
BL2020-512	Abandons existing easement rights (Special)
BL2020-513	Authorizes participation agreement with Alta Foundry, LP (Special)
BL2020-514	Abandons existing sanitary sewer main, sanitary sewer manhole, and easements, and to accept new public sanitary sewer main, sanitary sewer manholes, and easements (Special)
BL2020-515	Amends official zoning map (Special)
BL2020-516	Amends official zoning map (Special)
BL2020-517	Amends official zoning map (Special)
Amdt. 1	Amends the SP plans of Ord. BL2020-517 (Special)
BL2020-518	Amends official zoning map (Special)
BL2020-519	Amends official zoning map (Special)
BL2020-520	Amends official zoning map (Special)
BL2020-521	Amends official zoning map (Special)
BL2020-522	Amends official zoning map (Special)
Amdt. 1	Adds § 2 and renumbers subsequent sections of Ord. BL2020-522 (Special)
BL2020-523	Amends official zoning map (Special)
BL2020-524	Amends official zoning map (Special)
BL2020-525	Amends official zoning map (Special)
BL2020-526	Amends official zoning map (Special)
BL2020-527	Amends official zoning map (Special)
BL2020-528	Amends official zoning map (Special)
BL2020-529	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2020-529 (Special)
BL2020-530	Amends official zoning map (Special)
BL2020-531	Amends official zoning map (Special)
BL2020-532	Amends official zoning map (Special)
BL2020-533	Amends § 2.210.020.C (2.210)
BL2020-534	Adds § 5.04.110.C. (5.04)
BL2020-535	Adds § 16.20.150.T, U.; amends § 17.28.100 (16.20, 17.28)
Amdt. 1	Amends § 1 of Ord. BL2020-535 (16.20)
Amdt. 2	Amends §§ 1, 2 of Ord. BL2020-535 (16.20, 17.28)
BL2020-536	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2020-537	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-538	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-539	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-540	Designates honorary street name (Special)
BL2020-541	Designates honorary street name (Special)
BL2020-542	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2020-543	Abandons existing stormwater easement rights (Special)
BL2020-544	Abandons existing public water main and easements, and to accept new public water main, a replacement fire hydrant assembly and easements (Special)
BL2020-545	Accepts new public sewer main, sanitary sewer manholes and easements (Special)
BL2020-546	Abandons existing sanitary sewer main, and to accept one new sanitary sewer manhole (Special)
BL2020-547	Abandons existing public sanitary sewer main, sanitary sewer manhole and easements (Special)
BL2020-548	Abandons existing public sewer main, a sanitary sewer manhole and easements, and to accept new public sewer main, sanitary sewer manholes and easements (Special)

Ordinance Number	Disposition
BL2020-549	Abandons existing water and sanitary sewer mains, a fire hydrant assembly, sanitary sewer manholes and easements, and to accept new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2020-550	Amends § 2.222.030 (2.222)
Amdt. 1	Amends § 4; adds § 5 and renumbers remaining sections accordingly of Ord. BL2020-550 (2.222)
BL2020-551	(Deferred indefinitely)
BL2020-552	Approves a contract by and between the Metropolitan Government of Nashville and Davidson County, acting by and through the Mayor's Office, and the United Way of Middle Tennessee (Special)
BL2020-553	Requires a resolution of the metropolitan council prior to discontinuing operations at the J.B. Knowles Home Assisted Living Facility (Special)
BL2020-554	Approves amendment 2 to contract #455783 (Special)
BL2020-555	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-556	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-557	Amends the geographic information systems street and alley centerline layer (Special)
BL2020-558	Abandons existing water pumping station, brick building, the associated easement, and retains the remaining public utility and drainage easements located at 801 Stoner Mill Lane (Special)
BL2020-559	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2020-560	Accepts new public water and sanitary sewer mains, a fire hydrant assembly, sanitary sewer manholes and easements (Special)
BL2020-561	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2020-562	Abandons existing public sanitary sewer main and easements, and accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2020-563	Rehabilitates an existing sanitary sewer main and sanitary sewer manhole, and accepts a new sanitary sewer manhole and easements (Special)
BL2020-564	Accepts new water main, one fire hydrant assembly, a sanitary sewer manhole and easements (Special)
BL2020-565	Amends official zoning map (Special)
BL2020-566	Amends official zoning map (Special)
BL2020-567	Amends official zoning map (Special)
BL2020-568	Amends official zoning map (Special)
BL2020-569	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2020-569 (Special)
BL2020-570	Amends official zoning map (Special)
BL2020-571	Amends official zoning map (Special)
BL2020-572	Amends official zoning map (Special)
BL2020-573	Amends official zoning map (Special)
BL2020-574	Amends official zoning map (Special)
BL2020-575	Amends official zoning map (Special)
BL2020-576	Amends official zoning map (Special)
BL2020-577	Amends official zoning map (Special)
BL2020-578	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2020-578 (Special)
BL2020-579	Amends official zoning map (Special)
BL2020-580	Amends official zoning map (Special)
BL2020-581	(Deferred indefinitely)
BL2020-582	(Deferred indefinitely)
BL2020-583	Approves a Tri-Party Agreement between the Metropolitan Government of Nashville and Davidson County, Affordable Housing Resources, Inc., and TaylorMade Contracting LLC (Special)
BL2020-584	Approves amendment one to a contract by and between the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Tourism and Convention Commission, and the Nashville Convention & Visitors Bureau, to provide tourism and convention sales and marketing services (Special)
BL2020-585	Approves a lease agreement between the Metropolitan Government of Nashville and Davidson County and Pet Community Center (Special)
BL2020-586	Directs that certain actions be taken regarding the preservation of the licensed beds at the Bordeaux Long Term Care Facility and appraisals of the Bordeaux Long Term Care and J.B. Knowles Home Assisted Living Facilities, and requesting the creation of a long term plan for the J.B. Knowles Home Facility (Special)
BL2020-587	Amends Substitute Ordinance No. BL2019-1653 (Special)
Amdt. 1	Amends § 1 of Ord. BL2020-587 (Special)

Ordinance Number	Disposition
BL2020-588	Abandons existing water and sanitary sewer mains, sanitary sewer manholes and easements, replaces one fire hydrant assembly, and accepts new water and sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2020-589	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2020-590	Abandons existing sanitary sewer main, sanitary sewer manholes and easements, and accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2020-591	Accepts new sanitary sewer main, a sanitary sewer manhole and easements (Special)
BL2020-592	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2020-592 (Special)
BL2021-593	(Deferred indefinitely)
BL2021-594	Amends § 12.20.020 (12.20)
Amdt. A	Adds recital to Ord. BL2021-594 (Special)
Amdt. B	Amends § 3 of Ord. BL2021-594 (12.20)
BL2021-595	Approves an agreement between the Metropolitan Government of Nashville-Davidson County, Tennessee, by and through the Metropolitan Nashville Police Department ("MNPD"), and Vanderbilt University Medical Center ("VUMC") (Special)
BL2021-596	Amends §§ 1.01.010—1.01.050 (1.01)
Amdt. 1	Amends § 1 of Ord. BL2020-596 (1.01)
BL2021-597	Approves a participation agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Department of Public Works, and Monroe Infrastructure LLC (Special)
Amdt. 1	Amends § 1; adds §§ 3 and 4 and renumbers as necessary of Ord. BL2021-597 (Special)
Amdt. 2	Amends § 1 of Ord. BL2021-597 (Special)
BL2021-598	Relocates a public fire hydrant assembly (Special)
BL2021-599	Accepts a new sanitary sewer main and one sanitary sewer manhole (Special)
BL2021-600	Relocates a public fire hydrant assembly (Special)
BL2021-601	Amends official zoning map (Special)
BL2021-602	Amends official zoning map (Special)
BL2021-603	Amends official zoning map (Special)
BL2021-604	Amends official zoning map (Special)
BL2021-605	Amends official zoning map (Special)
BL2021-606	Amends official zoning map (Special)
BL2021-607	Amends official zoning map (Special)
BL2021-608	Amends official zoning map (Special)
BL2021-609	Amends official zoning map (Special)
BL2021-610	Amends official zoning map (Special)
BL2021-611	Amends official zoning map (Special)
BL2021-612	Establishes a special commission to review and investigate the circumstances and responses pertaining to the suicide bombing in Nashville on December 25, 2020 (Special)
BL2021-613	Approves a contract between the Metropolitan Government of Nashville and Davidson County, through the Department of Water and Sewerage Services and Lightwave Solar, LLC (Special)
BL2021-614	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2021-615	Accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2021-616	(Deferred indefinitely)
BL2021-617	(Deferred indefinitely)
BL2021-618	Provides for the waiver of certain building permit fees for the repair or rebuilding of property damaged as a result of the December 25, 2020, blast (Special)
Amdt. 1	Amends § 2 of Ord. BL2021-618 (Special)
BL2021-619	Adds § 17.24.075; amends § 17.40.340.B. (17.24, 17.40)
Amdt. 1	Amends § 1 of Ord. BL2021-619 (17.24)
BL2021-620	Adds §§ 17.36.680—17.36.730; amends § 17.40.740.C.3. (17.36, 17.40)
Amdt. 1	Amends § 1 of Ord. BL2021-620 (17.36)
Amdt. 2	Amends § 2 of Ord. BL2021-620 (17.40)
BL2021-621	Amends §§ 17.40.720, 17.40.730 (17.40)
Amdt. 1	Amends §§ 1 and 3 of Ord. BL2021-621 (17.40)
BL2021-622	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-623	Authorizes the director of public property administration, or his designee, to accept a donation of real property (Special)
BL2021-624	Accepts a greenway conservation easement (Special)
BL2021-625	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-626	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-627	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-628	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-629	Abandons existing sanitary sewer main, sanitary sewer manholes and easements, and accepts new public sanitary sewer mains, sanitary sewer manholes, a fire hydrant assembly and easements (Special)

Ordinance Number	Disposition
BL2021-630	Abandons existing sanitary sewer force main and easement, and accepts new sanitary water and sewer mains, sanitary sewer force main, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2021-631	Abandons existing public fire hydrant assemblies and easements, and accepts new water main, fire hydrant assemblies and easements (Special)
BL2021-632	Accepts a new public fire hydrant assembly (Special)
BL2021-633	Amends official zoning map (Special)
BL2021-634	Amends official zoning map (Special)
BL2021-635	Amends official zoning map (Special)
BL2021-636	Amends official zoning map (Special)
BL2021-637	Amends official zoning map (Special)
BL2021-638	Amends official zoning map (Special)
BL2021-639	Amends official zoning map (Special)
BL2021-640	Amends official zoning map (Special)
BL2021-641	Amends official zoning map (Special)
BL2021-642	Amends official zoning map (Special)
BL2021-643	Amends official zoning map (Special)
BL2021-644	Amends official zoning map (Special)
BL2021-645	Amends official zoning map (Special)
BL2020-646	Amends §§ 2.44.070, 2.56.210, 12.04.230, 12.04.235, 12.08.150, 12.41.010, 12.41.040.B., 12.42.010, 12.44.010.A., 12.44.020, 12.44.040, 12.44.060, 12.44.070, 13.08.080.H.; adds § 12.44.015; repeals § 12.44.080 (2.44, 2.56, 12.04, 12.08, 12.41, 12.42, 12.44, 13.08)
BL2021-647	Authorizes installation, construction and maintenance of underground and aerial encroachments (Special)
BL2021-648	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-649	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-650	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-651	(Withdrawn)
BL2021-652	Abandons existing public water mains and easements, and accepts new public water mains, fire hydrant assemblies, and easements (Special)
BL2021-653	Abandons a sanitary sewer main, adjusts a sanitary sewer manhole, and accepts sanitary sewer main encased in concrete and one sanitary sewer manhole (Special)
BL2021-654	(Deferred indefinitely)
BL2021-655	(Deferred indefinitely)
BL2021-656	Amends official zoning map (Special)
BL2021-657	Adds § 2.64.060 (2.64)
Amdts. 1, 2	Amends § 1 of Ord. BL2021-657 (2.64)
BL2021-658	Amends §§ 10.64.010, 10.64.011, 10.64.012, 10.64.015, 10.64.016, 10.64.017; adds §§ 10.64.013, 10.64.014 (10.64)
BL2021-659	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-660	Authorizes the installation, construction, and maintenance of underground encroachments (Special)
BL2021-661	Authorizes the installation, construction, and maintenance of underground encroachments (Special)
BL2021-662	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2021-663	Abandons existing public sanitary sewer main, sanitary sewer manholes and easements, and accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-664	Accepts new public sewer main, sanitary sewer manholes and easements (Special)
BL2021-665	Relocates a fire hydrant assembly (Special)
BL2021-666	Accepts new sanitary sewer force and water mains, fire hydrant assemblies and easements (Special)
BL2021-667	Amends official zoning map (Special)
BL2021-668	Amends official zoning map (Special)
BL2021-669	Amends official zoning map (Special)
BL2021-670	Amends official zoning map (Special)
BL2021-671	Amends official zoning map (Special)
BL2021-672	Amends official zoning map (Special)
BL2021-673	Amends official zoning map (Special)
BL2021-674	Amends official zoning map (Special)
BL2021-675	Adds § 3.52.020 (3.52)
BL2021-676	Amends §§ 4.04.080, 4.08.010, 4.08.020, 4.12.010, 4.20.100, 4.20.105; adds §§ 4.20.055, 4.20.130, 4.20.140 (4.04, 4.08, 4.12, 4.20) [portions preempted by Tennessee General Assembly (SB 1150/HB 1112) Public Chapter No. 234]
BL2021-677	Adds § 10.20.500 (10.20)
BL2021-678	Adds § 12.68.220 (12.68)
BL2021-679	Amends § 13.08.080.G.(2), (5) (13.08)
BL2021-680	Adds § 16.04.200.F. (16.04)
BL2021-681	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-682	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)

Ordinance Number	Disposition
BL2021-683	Abandons existing public sanitary sewer main, a sanitary sewer manhole and easements, and accepts new sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2021-684	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2021-685	Accepts a new sanitary sewer manhole and easement (Special)
BL2021-686	Abandons existing public water main and a portion of a certain public utility easement (Special)
BL2021-687	Abandons an existing sanitary sewer main, a sanitary sewer manhole and easements, and accepts a new sanitary sewer main, a sanitary sewer manhole and easements (Special)
BL2021-688	Authorizes execution of quitclaim deed (Special)
BL2021-689	Amends §§ 1.01.010—1.01.050 (1.01)
BL2021-690	Authorizes the granting of a permanent easement (Special)
BL2021-691	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2021-692	(Deferred indefinitely)
BL2021-693	Establishes a Special Solid Waste and Recycling Commission (Special)
BL2021-694	Requires the Metropolitan Department of Water and Sewerage Services to prepare a Stormwater Masterplan evaluating existing infrastructure throughout Davidson County (Special)
BL2021-695	Approves a participation agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Department of Water and Sewerage Services, and Prism Properties (Special)
BL2021-696	Approves a participation agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Department of Water and Sewerage Services, and Germantown JV, LLC (Special)
BL2021-697	Abandons existing water mains and a fire hydrant assembly and easements, and accepts new water main and fire hydrant assemblies and easements (Special)
BL2021-698	Abandons existing public utility easement (Special)
BL2021-699	Accepts new public sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2021-700	Accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2021-701	Abandons existing public sanitary sewer main and easements, and accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2021-702	Abandons existing public sanitary sewer main, sanitary sewer manhole and easements, and accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2021-703	Abandons existing water main, a fire hydrant assembly and easements, and accepts a new water main, fire hydrant assemblies and easements (Special)
BL2021-704	Abandons existing combination sewer main and easements, relocates two existing fire hydrant assemblies, and accepts new combination sewer main, combination sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-705	Amends official zoning map (Special)
BL2021-706	Amends official zoning map (Special)
BL2021-707	Amends official zoning map (Special)
BL2021-708	Amends official zoning map (Special)
BL2021-709	(Withdrawn)
BL2021-710	Amends official zoning map (Special)
BL2021-711	Amends official zoning map (Special)
BL2021-712	Amends official zoning map (Special)
BL2021-713	Amends official zoning map (Special)
BL2021-714	Amends official zoning map (Special)
BL2021-715	Amends official zoning map (Special)
BL2021-716	Amends official zoning map (Special)
BL2021-717	Adds § 16.28.110.J. (16.28)
BL2021-718	Repeals §§ 2.76.010—2.76.140, 2.84.010—2.84.130, 2.92.010—2.92.130; adds §§ 2.76.010—2.76.120 (2.76, 2.84, 2.92)
Amdt. 1	Amends § 2 of Ord. BL2021-718 (2.76)
BL2021-719	(Withdrawn)
BL2021-720	(Withdrawn)
BL2021-721	Amends §§ 17.08.030, 17.16.050.D.2. (17.08, 17.16)
BL2021-722	Amends §§ 2.24.190, 17.40.060.B. (2.24, 17.40)
BL2021-723	Abandons existing water main and easements, and accepts new water main, a fire hydrant assembly and easements (Special)

Ordinance Number	Disposition
BL2021-724	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-725	Amends § 2.149.040.G. (2.149)
Amdt. 1	Amends § 1 of Ord. BL2021-725 (2.149)
BL2021-726	(Deferred indefinitely)
BL2021-727	Declares surplus property (Special)
Amdt. 1	Amends first recital and § 1 of Ord. BL2021-727 (Special)
BL2021-728	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-729	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-730	Accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-731	Abandons existing public sanitary sewer main and easements, and accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2021-732	Accepts the relocation of existing water main and easements (Special)
BL2021-733	Abandons existing public sanitary sewer main, sanitary sewer manhole and easements, and accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2021-734	Accepts sanitary sewer main, a sanitary sewer manhole and easements (Special)
BL2021-735	Amends official zoning map (Special)
BL2021-736	Budget ordinance for fiscal year 2022 (Special)
Amdt. A	Amends Article I of Ord. BL2021-736 (Special)
Amdt. B	Amends Section I, Schedule B of Ord. BL2020-286 (Special)
BL2021-737	Establishes tax levy in the General Services District for fiscal year 2021—2022 (Special)
BL2021-738	Amends §§ 4.12.040.E., 4.36.020.A., B. (4.12, 4.36)
BL2021-739	Provides for the designation of public property within specified areas of downtown Nashville as a temporary "Special Event Zone" during the time period beginning at nine o'clock (9:00) p.m. on July 2, 2021, and ending at eleven fifty-nine (11:59) p.m. on July 5, 2021, relative to the use of these areas in conjunction with the 2021 July 4th Celebration and related activities and events (Special)
BL2021-740	Creates the positions of Transportation Chief Engineer/Assistant Director, Transportation Director, Planning Deputy Executive Director, Safety Administrator, and Veterans Service Supervisor (Special)
BL2021-741	Approves the sale of approximately 536 square feet of remnant property adjacent to 11th Avenue North (Special)
BL2021-742	Declares surplus property (Special)
BL2021-743	Approves a purchase and sale agreement between the Metropolitan Government and Piedmont Natural Gas Company, Inc. (Special)
BL2021-744	(Withdrawn)
BL2021-745	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-746	Abandons an existing fire hydrant assembly and easement, and accepts a new fire hydrant assembly and easement (Special)
BL2021-747	Abandons existing sanitary sewer main, a sanitary sewer manhole and easements, and accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-748	Accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-749	Abandons existing combination sewer main, sanitary sewer main and easements, and accepts new combination sewer main, sanitary sewer main, combination sewer manholes/inlets, sanitary sewer manholes and easements (Special)
BL2021-750	Abandons existing stormwater easement rights (Special)
BL2021-751	Amends official zoning map (Special)
Amdt. 1	Replaces attached Plan of Ord. BL2021-751 (Special)
BL2021-752	Adopts capital improvements budget and program 2021—2022 through 2026—2027 (Special)
Amdts. A—H	Amends list of projects of Ord. BL2021-752 (Special)
BL2021-753	Amends §§ 2.40.210, 2.40.220, 2.40.260 (2.40)
BL2021-754	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-755	Abandons an existing drainage easement rights (Special)
BL2021-756	Abandons a portion of easement rights (Special)
BL2021-757	Authorizes the metropolitan government to negotiate and accept a permanent easement (Special)

Ordinance Number	Disposition
BL2021-758	Authorizes the metropolitan government to negotiate and accept a permanent easement (Special)
BL2021-759	Authorizes the metropolitan government to negotiate and accept permanent easements (Special)
BL2021-760	Abandons existing public sanitary sewer force main and easements, and accepts new sanitary sewer force main and easements (Special)
BL2021-761	Accepts new public sanitary sewer and water mains, sanitary sewer manhole, fire hydrant assembly and easements (Special)
BL2021-762	Accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-763	Amends official zoning map (Special)
BL2021-764	Amends official zoning map (Special)
BL2021-765	Amends official zoning map (Special)
BL2021-766	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2021-766 (Special)
Amdt. 2	Amends § 4 of Ord. BL2021-766 (Special)
BL2021-767	Amends official zoning map (Special)
BL2021-768	Amends official zoning map (Special)
BL2021-769	Amends official zoning map (Special)
BL2021-770	Amends official zoning map (Special)
BL2021-771	Amends official zoning map (Special)
BL2021-772	Amends official zoning map (Special)
BL2021-773	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3 and 4 of Ord. BL2021-773 (Special)
BL2021-774	Amends official zoning map (Special)
BL2021-775	Amends official zoning map (Special)
BL2021-776	Amends official zoning map (Special)
BL2021-777	Amends official zoning map (Special)
BL2021-778	Amends official zoning map (Special)
BL2021-779	Amends official zoning map (Special)
BL2021-780	(Failed)
BL2021-781	Amends §§ 3.08.110, 3.24.010 (3.08, 3.24)
BL2021-782	Repeals § 2.56.135 (2.56)
BL2021-783	Amends § 13.26.020 (13.26)
Amdt. 1	Amends § 1 of Ord. BL2021-783 (13.26)
BL2021-784	Amends §§ 17.36.680, 17.36.690 (17.36)
BL2021-785	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-786	Accepts new sanitary sewer and water main, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-787	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2021-787 (Special)
BL2021-788	Amends official zoning map (Special)
BL2021-789	Amends official zoning map (Special)
BL2021-790	Amends official zoning map (Special)
BL2021-791	Amends official zoning map (Special)
BL2021-792	Adds § 2.136.030 (2.136)
Amdt. 1	Amends § 1 of Ord. BL2021-792 (2.136)
BL2021-793	Amends § 13.08.030.C. (13.08)
BL2021-794	Repeals § 15.44.050.E. (15.44)
BL2021-795	Adds § 16.24.330.S. (16.24)
BL2021-796	Amends §§ 17.12.020, 17.40.340.A. (17.12, 17.40)
BL2021-797	Amend § 17.12.070.B. (17.12)
BL2021-798	Amends § 17.16.250.D. (17.16)
BL2021-799	Grants temporary construction easements to Piedmont Natural Gas Company, Inc. (Special)
Amdt. 1	Adds recitals between the third and fourth recitals of Ord. BL2021-799 (Special)
Amdt. 2	Amends § 1 of Ord. BL2021-799 (Special)
BL2021-800	Amends §§ 1.01.010—1.01.050 (1.01)
BL2021-801	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-802	Abandons existing public sanitary sewer main, sanitary sewer manhole and easements, and accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2021-803	Abandons existing combination sewer and water mains, combination sewer manholes, fire hydrant assemblies and easements, and accepts new combination sewer, sanitary sewer and water mains, combination sewer manholes/inlets, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-804	Abandons existing water and sanitary sewer, fire hydrant assemblies, sanitary sewer manholes and easements and accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2021-805	Accepts a new sanitary sewer manhole (Special)
BL2021-806	Relocates a public fire hydrant assembly (Special)
BL2021-807	Accepts new water main, fire hydrant assemblies and easements (Special)
BL2021-808	Amends official zoning map (Special)
BL2021-809	Amends official zoning map (Special)
Amdt. 1	Attaches sketch page and the SP plans; amends the fourth recital and § 4 of Ord. BL2021-809 (Special)
BL2021-810	Amends official zoning map (Special)
BL2021-811	Amends official zoning map (Special)
BL2021-812	Amends official zoning map (Special)
BL2021-813	Amends official zoning map (Special)
Amdt. 1	Adds a new § 4 and renumbers subsequent sections of Ord. BL2021-813 (Special)

Ordinance Number	Disposition
BL2021-814	Amends official zoning map (Special)
BL2021-815	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2021-815 (Special)
Amdt. 2	Amends § 4 of Ord. BL2021-815 (Special)
BL2021-816	Amends official zoning map (Special)
BL2021-817	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2021-817 (Special)
BL2021-818	Amends official zoning map (Special)
BL2021-819	Amends official zoning map (Special)
BL2021-820	Amends official zoning map (Special)
BL2021-821	Amends official zoning map (Special)
BL2021-822	Amends official zoning map (Special)
BL2021-823	Amends official zoning map (Special)
BL2021-824	Amends official zoning map (Special)
BL2021-825	Amends official zoning map (Special)
BL2021-826	Amends official zoning map (Special)
BL2021-827	Amends official zoning map (Special)
BL2021-828	Amends official zoning map (Special)
BL2021-829	Adds §§ 2.226.010—2.226.110 (2.226)
BL2021-830	Amends §§ 3.08.010, 3.36.020, 3.37.020 (3.08, 3.36, 3.37)
BL2021-831	(Withdrawn)
BL2021-832	(Deferred indefinitely)
BL2021-833	Approves the fourth amendment to an agreement between the Metropolitan Government of Nashville and Davidson County and Adkisson & Associates Architects, Inc. (Special)
BL2021-834	Approves an agreement between the Mental Health Cooperative ("MHC"), and the Metropolitan Government of Nashville and Davidson County, by and through the Metropolitan Nashville Police Department ("MNPD") (Special)
BL2021-835	(Deferred indefinitely)
BL2021-836	Accepts new sanitary sewer and water main, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-837	Accepts a new public water main and a fire hydrant assembly (Special)
BL2021-838	Abandons existing public sanitary sewer main and easements, and accepts new sanitary sewer and water main, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-839	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2021-840	Amends official zoning map (Special)
BL2021-841	(Deferred indefinitely)
BL2021-842	Amends § 16.28.190; adds § 16.28.195; amends § 17.40.430 (16.28, 17.40)
Amdt. 1	Amends §§ 1, 2 of Ord. BL2021-842 (16.28)
BL2021-843	Amends §§ 17.36.110, 17.36.120, 17.40.550 (17.36, 17.40)
BL2021-844	Adds § 17.40.720.D. (17.40)
BL2021-845	Approves the third amendment to an agreement between the Metropolitan Government of Nashville and Davidson County and HDR Engineering, Inc. (Special)
BL2021-846	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-847	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-848	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-849	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-850	Accepts new sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2021-851	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2021-852	Accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-853	Amends official zoning map (Special)
BL2021-854	Amends official zoning map (Special)
BL2021-855	Amends official zoning map (Special)
BL2021-856	Amends official zoning map (Special)
BL2021-857	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2021-857 (Special)
Amdt. 2	Amends § 4 of Ord. BL2021-857 (Special)
BL2021-858	Amends official zoning map (Special)
BL2021-859	Amends official zoning map (Special)
BL2021-860	Amends official zoning map (Special)
BL2021-861	Amends official zoning map (Special)
BL2021-862	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2021-862 (Special)
Amdt. 2	Amends § 4 of Ord. BL2021-862 (Special)
BL2021-863	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2021-863 (Special)
Amdt. 2	Amends § 4 of Ord. BL2021-863 (Special)
BL2021-864	Amends § 5.20.100 (5.20)
BL2021-865	Abandons an existing public water main and easements, and accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2021-866	(Deferred indefinitely)
BL2021-867	Amends § 12.40.190.B. (12.40)
BL2021-868	Amends §§ 17.37.010, 17.40.340 (17.37, 17.40)
BL2021-869	Amends § 17.37.010 (17.37)

Ordinance Number	Disposition
BL2021-870	Approves a documentary film agreement between the Metropolitan Government of Nashville and Davidson County and Eureka Entertainment, LLC (Special)
BL2021-871	Establishes a program for the purpose of providing assistance to low-income elderly residents for the fiscal year 2021-2022 (Special)
BL2021-872	(Deferred indefinitely)
BL2021-873	Authorizes the acquisition of certain right-of-way easements, drainage easements, temporary construction easements, and property rights by negotiation or condemnation (Special)
BL2021-874	Authorizes conditional abandonment of a portion of Alley 371, approves the acquisition of an interest in certain real property and improvements thereon comprising a new alley, and grants an easement (Special)
BL2021-875	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-876	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-877	Approves a contract between the Metropolitan Government of Nashville and Davidson County, through the Department of Water and Sewerage Services and Light-Wave Renewables, LLC (Special)
BL2021-878	Approves a participation agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Department of Water and Sewerage Services, and Regent Homes, LLC (Special)
BL2021-879	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Department of Water and Sewerage Services ("MWS"), and Piedmont Natural Gas Company ("Piedmont") (Special)
BL2021-880	Accepts new sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2021-881	Abandons existing water main and easements, relocates existing fire hydrant assemblies, and accepts new water main and easements (Special)
BL2021-882	Accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2021-883	Accepts new sanitary sewer main and a sanitary sewer manhole (Special)
BL2021-884	Abandons existing sanitary sewer main, sanitary sewer manhole and easements, and to accept new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2021-885	(Pending)
BL2021-886	Authorizes building material restrictions and requirements (Special)
BL2021-887	Authorizes building material restrictions and requirements (Special)
BL2021-888	Authorizes building material restrictions and requirements (Special)
BL2021-889	Authorizes building material restrictions and requirements (Special)
BL2021-890	Authorizes building material restrictions and requirements (Special)
BL2021-891	(Withdrawn)
BL2021-892	(Withdrawn)
BL2021-893	Amends official zoning map (Special)
BL2021-894	Amends official zoning map (Special)
BL2021-895	Amends official zoning map (Special)
Amdt. 1	Amends SP Plans of Ord. BL2021-895 (Special)
BL2021-896	Authorizes building material restrictions and requirements (Special)
BL2021-897	(Deferred indefinitely)
BL2021-898	Amends official zoning map (Special)
BL2021-899	Amends official zoning map (Special)
BL2021-900	Amends official zoning map (Special)
BL2021-901	Authorizes building material restrictions and requirements (Special)
BL2021-902	Amends official zoning map (Special)
BL2021-903	Amends official zoning map (Special)
BL2021-904	Authorizes building material restrictions and requirements (Special)
BL2021-905	Amends official zoning map (Special)
BL2021-906	Amends official zoning map (Special)
BL2021-907	Amends official zoning map (Special)
BL2021-908	Authorizes building material restrictions and requirements (Special)
BL2021-909	Amends official zoning map (Special)
BL2021-910	Amends official zoning map (Special)
BL2021-911	Amends § 2.100.010; adds Ch. 6.77 and §§ 6.77.010—6.77.430; repeals 6.75.240.C.; adds 7.24.040.C.; amends § 9.20.020.B.; repeals § 12.54.210.C. (2.100, 6.77, 6.75, 7.24, 9.20, 12.54)
Amdt. 1	Amends §§ 3—5 of Ord. BL2021-911 (Special)
Amdt. 2	Amends § 2 of Ord. BL2021-911 (6.77)
BL2021-912	(Withdrawn)
BL2021-913	Amends § 15 of Ord. BL2019-1633 (Special)

Ordinance Number	Disposition
BL2021-914	Approves a contract between the Metropolitan Government of Nashville and Davidson County, acting by and through the Mayor's Office, and the United Way of Middle Tennessee (Special)
BL2021-915	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Department of Parks and Recreation ("Parks"), and Memphis Basketball, LLC (Special)
BL2021-916	Provides the honorary street name designation of "Billy Sherrill Way" for a portion of 18th Ave S. (Special)
BL2021-917	Authorizes the metropolitan government to negotiate and accept permanent easements (Special)
BL2021-918	Abandons an existing storm sewer easement (Special)
BL2021-919	Accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-920	Abandons and accepts sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2021-921	Amends §§ 6.72.135.A.3., 6.72.435.A.3., 6.75.560.A.3. (6.72, 6.75)
Amdt. 1	Amends §§ 2 and 3 of Ord. BL2021-921 (6.72, 6.75)
Amdt. 2	Amends §§ 2 and 3 of Ord. BL2021-921 (6.72, 6.75)
BL2021-922	(Deferred indefinitely)
BL2021-923	Amends § 17.37.010 (17.37)
BL2021-924	Grants permanent and temporary construction easements to Piedmont Natural Gas Co. (Special)
BL2021-925	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-926	Approves a cooperative research and development agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Department of Water and Sewerage Services, the Department of Homeland Security, and Intellisense Systems, Inc. (Special)
BL2021-927	Authorizes the metropolitan government to negotiate and accept permanent easements (Special)
BL2021-928	Abandons existing sanitary sewer main, storm sewer lines, sanitary sewer manhole, storm catch basin and easements, relocates storm sewer line, and accepts new sanitary sewer and water mains, sanitary sewer manholes, storm catch basins, fire hydrant assembly and easements (Special)
BL2021-929	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2021-929 (Special)
BL2021-930	Authorizes building material restrictions and requirements (Special)
BL2021-931	Amends official zoning map (Special)
BL2021-932	Authorizes building material restrictions and requirements (Special)
BL2021-933	Amends official zoning map (Special)
BL2021-934	Authorizes building material restrictions and requirements (Special)
BL2021-935	Amends official zoning map (Special)
BL2021-936	Authorizes building material restrictions and requirements (Special)
BL2021-937	Amends official zoning map (Special)
BL2021-938	Authorizes building material restrictions and requirements (Special)
BL2021-939	Amends official zoning map (Special)
BL2021-940	Authorizes building material restrictions and requirements (Special)
BL2021-941	Amends official zoning map (Special)
BL2021-942	Authorizes building material restrictions and requirements (Special)
BL2021-943	Amends official zoning map (Special)
BL2021-944	Amends official zoning map (Special)
BL2021-945	Amends official zoning map (Special)
BL2021-946	Amends official zoning map (Special)
BL2021-947	Amends official zoning map (Special)
BL2021-948	Amends official zoning map (Special)
BL2021-949	Authorizes building material restrictions and requirements (Special)
BL2021-950	Amends official zoning map (Special)
BL2021-951	Amends official zoning map (Special)
BL2021-952	Amends official zoning map (Special)
BL2021-953	Amends official zoning map (Special)
BL2021-954	Amends official zoning map (Special)
BL2021-955	Amends official zoning map (Special)
BL2021-956	Authorizes building material restrictions and requirements (Special)
BL2021-957	Amends official zoning map (Special)
BL2021-958	Amends official zoning map (Special)
BL2021-959	Names the County Clerk's Office Lobby at the Howard Office Building in honor of Mike Taylor, Chief Deputy Clerk of the Davidson County Clerk's Office (Special)
BL2021-960	Amends official zoning map (Special)
BL2021-961	Amends § 13.08.080 (13.08)
Amdt. A	Amends § 1 of Ord. BL2021-961 (13.08)

Ordinance Number	Disposition
Amdt. B	Amends § 1 of Ord. BL2021-961 (13.08)
Amdt. C	Amends § 1 of Ord. BL2021-961 (13.08)
BL2021-962	Approves and authorizes the Director of Public Property Administration to accept a donation of 14 square feet of real property located at the property line between 914 East Trinity Lane and 936 East Trinity Lane (Special)
BL2021-963	Accepts a greenway conservation easement and approves a greenway participation agreement and declaration (Special)
BL2021-964	Declares certain planned roads on the Nashville Fairgrounds campus to be public rights-of-way (Special)
BL2021-965	Abandons existing sanitary sewer main, sanitary sewer manhole and easements, and accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2021-966	Accepts a new public water and sanitary sewer mains, fire hydrant assembly, sanitary sewer manhole and easements (Special)
BL2021-967	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2021-968	Accepts new sanitary sewer main and sanitary sewer manhole (Special)
BL2021-969	Abandons existing sanitary sewer main, sewer manhole and a portion of easement rights (Special)
BL2021-970	Amends § 2.24.250.G. (2.24)
Amdt. 1	Amends § 1 of Ord. BL2021-970 (2.24)
BL2021-971	Adds §§ 2.63.010—2.63.040; amends § 2.144.020 (2.63, 2.144)
Amdt. 1	Amends § 1 of Ord. BL2021-971 (2.63)
Amdt. 2	Amends § 1 of Ord. BL2021-971 (2.63)
BL2021-972	Adds Ch. 5.11 and §§ 5.11.010—5.11.060 (5.11)
BL2021-973	(Withdrawn)
BL2021-974	Adds § 17.28.100.B.3. (17.28)
BL2021-975	Amends § 17.40.660.D. (17.40)
Amdt. 1	Amends § 1 of Ord. BL2021-975 (17.40)
BL2021-976	Approves lease agreement between the Metropolitan Government of Nashville and Davidson County and The United Way of Greater Nashville (Special)
BL2021-977	Designates public property within specified areas of downtown as a temporary "Special Event Zone" (Special)
BL2021-978	Amends §§ 1.01.010—1.01.050 (1.01)
BL2021-979	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-980	Amends the geographic information systems street and alley centerline layer (Special)
BL2021-981	Authorizes Silo Capital, LLC to install, construct and maintain underground encroachments in the right of way located at 6100 Robertson Avenue (Special)
BL2021-982	Accepts a fire hydrant assembly (Special)
BL2021-983	Amends official zoning map (Special)
BL2021-984	Authorizes building material restrictions and requirements (Special)
BL2021-985	Amends official zoning map (Special)
BL2021-986	Authorizes building material restrictions and requirements (Special)
BL2021-987	Amends official zoning map (Special)
BL2021-988	Amends official zoning map (Special)
BL2021-989	Amends official zoning map (Special)
BL2021-990	Authorizes building material restrictions and requirements (Special)
BL2021-991	Amends official zoning map (Special)
BL2021-992	Authorizes building material restrictions and requirements (Special)
BL2021-993	Amends official zoning map (Special)
BL2021-994	Amends official zoning map (Special)
BL2021-995	Amends official zoning map (Special)
BL2021-996	Amends official zoning map (Special)
BL2021-997	Authorizes building material restrictions and requirements (Special)
BL2021-998	Amends official zoning map (Special)
BL2021-999	Amends official zoning map (Special)
BL2021-1000	Amends official zoning map (Special)
BL2021-1001	(Deferred indefinitely)
BL2021-1002	(Deferred indefinitely)
BL2021-1003	Amends official zoning map (Special)
BL2021-1004	Authorizes building material restrictions and requirements (Special)
BL2021-1005	Amends official zoning map (Special)
BL2021-1006	Amends official zoning map (Special)
BL2021-1007	Amends official zoning map (Special)
BL2021-1008	Amends official zoning map (Special)
BL2021-1009	Amends official zoning map (Special)
BL2021-1010	(Deferred indefinitely)
BL2021-1011	Amends §§ 7.08.010, 7.08.030, 7.08.100, 7.08.140, 7.24.040 (7.08, 7.24)
BL2021-1012	Amends § 16.28.080.B. (16.28)
BL2021-1013	Approves a lease agreement between the Metropolitan Government of Nashville and Davidson County acting by and through the Metropolitan Board of Education and Liberty Collegiate Academy (Special)
BL2021-1014	(Deferred indefinitely)
BL2021-1015	(Failed)
BL2021-1016	Names the landing and steps in front of the Historic Metropolitan Courthouse in honor of Diane Nash (Special)

Ordinance Number	Disposition
BL2021-1017	Approves an agreement between Trevecca Nazarene University and the Metropolitan Government of Nashville and Davidson County, by and through the Metropolitan Nashville Police Department ("MNPD") (Special)
BL2021-1018	Approves an agreement between Lights On! and the Metropolitan Government of Nashville and Davidson County, by and through the Metropolitan Nashville Police Department ("MNPD") (Special)
BL2021-1019	Abandons existing sanitary sewer main and sanitary sewer manholes and to accept new sanitary sewer main and sanitary sewer manholes (Special)
BL2021-1020	Abandons existing sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assembly and easements, and to accept new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2021-1021	Amends Ordinance No. BL2021-693 (Special)
BL2021-1022	Adds § 17.36.020A; amends §§ 17.36.540.C., 17.36.590.E. (17.36)
BL2021-1023	(Withdrawn)
BL2021-1024	Declares a certain planned road on the Orchard Bend Park property to be a public right-of-way and grants a temporary access easement (Special)
BL2021-1025	(Withdrawn)
BL2021-1026	Authorizes PDP Acquisitions, LLC to install, construct and maintain underground encroachments in the right of way located at Alley #806 at the intersection of Hagan Street (Special)
BL2021-1027	Abandons existing water, sanitary sewer and storm sewer mains, a sanitary sewer manhole, storm catch basins and easements, to relocate a fire hydrant assembly and to accept new water and storm sewer mains, storm catch basins, water quality unit and easements (Special)
BL2021-1028	Relocates a water pressure reducing valve, constructs public water main, and acquires temporary and permanent easements through negotiation, condemnation and acceptance (Special)
BL2021-1029	Replaces a sanitary sewer force main, constructs a new sanitary sewer force main, and acquires temporary easements through negotiation, condemnation and acceptance (Special)
BL2021-1030	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2021-1030 (Special)
BL2021-1031	Authorizes building material restrictions and requirements (Special)
BL2021-1032	Amends official zoning map (Special)
BL2021-1033	Amends official zoning map (Special)
BL2021-1034	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2021-1034 (Special)
BL2021-1035	Authorizes building material restrictions and requirements (Special)
BL2021-1036	Amends official zoning map (Special)
BL2021-1037	Amends official zoning map (Special)
BL2021-1038	Authorizes building material restrictions and requirements (Special)
BL2021-1039	Amends official zoning map (Special)
BL2021-1040	Authorizes building material restrictions and requirements (Special)
BL2021-1041	Amends official zoning map (Special)
BL2021-1042	Amends official zoning map (Special)
BL2021-1043	(Deferred indefinitely)
BL2021-1044	Amends official zoning map (Special)
BL2021-1045	Amends official zoning map (Special)
BL2021-1046	Amends official zoning map (Special)
BL2021-1047	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2021-1047 (Special)
BL2021-1048	Authorizes building material restrictions and requirements (Special)
BL2021-1049	Amends § 5.04.070 (5.04)
BL2021-1050	Amends § 16.28.230.B. (16.28)
BL2021-1051	Adopts a Plan for a Metropolitan Council of Nashville and Davidson County Internet Forum (Special)
BL2021-1052	Amends Charter, Appendix 2, redistricting the councilmanic districts and revising the school districts (Charter, App. 2)
BL2021-1053	Adopts the geographic information systems street and alley centerline layer (Special)
BL2021-1054	Approves an agreement by and between the Metropolitan Government, CSX Transportation, Inc., and Nashville Phase II Property Holder LLC (Special)
BL2021-1055	Provides the honorary street name designation of "Charles Dungey Way" for a portion of 40th Avenue North (Special)
BL2021-1056	Amends official zoning map (Special)
BL2022-1057	Amends official zoning map (Special)
BL2022-1058	Authorizes building material restrictions and requirements (Special)
BL2022-1059	Amends official zoning map (Special)
BL2022-1060	Authorizes building material restrictions and requirements (Special)
BL2022-1061	Amends official zoning map (Special)
BL2022-1062	Authorizes building material restrictions and requirements (Special)
BL2022-1063	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2022-1064	Authorizes building material restrictions and requirements (Special)
BL2022-1065	Amends official zoning map (Special)
BL2022-1066	Authorizes building material restrictions and requirements (Special)
BL2022-1067	(Deferred indefinitely)
BL2022-1068	Amends official zoning map (Special)
BL2022-1069	Amends official zoning map (Special)
BL2022-1070	Amends official zoning map (Special)
BL2022-1071	Amends official zoning map (Special)
BL2022-1072	Amends official zoning map (Special)
BL2022-1073	Amends §§ 17.04.060, 17.08.030, 17.16.035, 17.16.170, 17.20.030 (17.04, 17.08, 17.16, 17.20)
BL2022-1074	Approves Amendment 1 to the contract for deferred compensation services between Voya Retirement Insurance and Annuity Company and Voya Financial Partners, LLC and the Metropolitan Government of Nashville and Davidson County (Special)
BL2022-1075	Authorizes the Director of Public Property, or his designee, to transfer to Hoosier Capital, L.P., via the attached quitclaim deed, any remaining interest the Metropolitan Government of Nashville and Davidson County may have in an unnumbered alley and unnumbered strip of property (Special)
BL2022-1076	Approves a participation agreement between the Metropolitan Government of Nashville and Davidson County, through the Nashville Department of Transportation and Multimodal Infrastructure, and SP Church Project, LLC (Special)
BL2022-1077	Abandons a portion of easement rights, for property located at 503 West Trinity Lane, formerly Winstead Avenue, Alley No. 1039, and an unnumbered alley (Special)
BL2022-1078	Adopts the revised Flood Insurance Rate Map (Special)
BL2022-1079	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1080	Abandons existing sanitary sewer main, sanitary sewer manholes, fire hydrant assembly and easements, and to accept a new sanitary sewer manhole, fire hydrant assembly and easements (Special)
BL2022-1081	Abandons existing public sanitary sewer main, to adjust sanitary sewer manholes, and to accept new sanitary sewer main (Special)
BL2022-1082	Abandons existing sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assembly and easements, to relocate a fire hydrant assembly, and to accept new sanitary sewer and water mains, sanitary sewer manhole, fire hydrant assemblies and easements (Special)
BL2022-1083	Amends official zoning map (Special)
BL2022-1084	Authorizes building material restrictions and requirements (Special)
BL2022-1085	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2022-1085 (Special)
BL2022-1086	Authorizes building material restrictions and requirements (Special)
Amdt. 1	Amends § 1 of Ord. BL2022-1086
BL2022-1087	Amends official zoning map (Special)
BL2022-1088	Amends §§ 2.80.080, 17.28.100, 17.40.010 (2.80, 17.28, 17.40)
BL2022-1089	Amends §§ 6.77.010, 6.77.020, 6.77.040—6.77.090, 6.77.110, 6.77.120, 6.77.150, 6.77.190, 6.77.200, 6.77.220—6.77.240, 6.77.270, 6.77.300, 6.77.320, 6.77.390, 6.77.420, 7.27.040 (6.77, 7.24)
Amdt. 1	Amends §§ 1, 14, 16 and 22 of Ord. BL2022-1089 (6.77, 7.24)
Amdt. 2	Repeals Amdt. 1 and amends §§ 1, 6, 14, 16, 21 and 22 of Ord. BL2022-1089 (6.77, 7.24)
BL2022-1090	(Withdrawn)
BL2022-1091	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)
BL2022-1092	Provides the honorary street name designation of "David McMurry Way" for a portion of Woodruff Street (Special)
BL2022-1093	Authorizes the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Department of Water and Sewerage Services, hereinafter known as "METRO", to enter into an agreement with PR Germantown, LLC (Special)
BL2022-1094	Accepts new sanitary sewer main and sanitary sewer manholes (Special)
BL2022-1095	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1096	Abandons and removes existing water main, and to accept new water main and fire hydrant assembly (Special)
BL2022-1097	Abandons existing public sanitary sewer main and sanitary sewer manhole, and accepts new sanitary sewer mains and sanitary sewer manholes (Special)

Ordinance Number	Disposition
BL2022-1098	Amends official zoning map (Special)
BL2022-1099	Amends official zoning map (Special)
BL2022-1100	Amends official zoning map (Special)
BL2022-1101	Authorizes building material restrictions and requirements (Special)
BL2022-1102	Amends official zoning map (Special)
BL2022-1103	Amends official zoning map (Special)
BL2022-1104	Amends official zoning map (Special)
BL2022-1105	Amends official zoning map (Special)
Amdt. 1	Substitutes SP plans of Ord. BL2022-1105 (Special)
BL2022-1106	Authorizes building material restrictions and requirements (Special)
BL2022-1107	Amends official zoning map (Special)
BL2022-1108	Amends official zoning map (Special)
BL2022-1109	Authorizes building material restrictions and requirements (Special)
BL2022-1110	Amends official zoning map (Special)
BL2022-1111	Amends official zoning map (Special)
BL2022-1112	Authorizes the acquisition of an interest in a parcel of real property and approves the granting of an easement above and below the same parcel in connection with the development of a project located at 215 and 217 Third Avenue North (Special)
BL2022-1113	Amends §§ 6.80.160, 6.80.165, 6.80.230, 6.80.330, 6.80.535, 6.80.545, 6.80.550 (6.80)
BL2022-1114	Amends § 13.08.080 (13.08)
BL2022-1115	Amends § 13.08.080 (13.08)
Amdt. 1	Amends recitals and § 1 of Ord. BL2022-1115 (13.08)
BL2022-1116	Amends § 13.08.080 (13.08)
BL2022-1117	Authorizes an agreement with Bancroft O'Quinn, Jr. (Special)
BL2022-1118	Abandons existing public access easement (Special)
BL2022-1119	Adjusts and raises casting of existing sanitary sewer manholes (Special)
BL2022-1120	Approves a contract between the Metropolitan Government, acting by and through the Metropolitan Nashville Police Department, and the Mental Health Cooperative (Special)
BL2022-1121	Amends §§ 17.12.090, 17.24.100, 17.24.110, 17.28.030, 17.28.040, 17.28.060, 17.36.070, 17.36.150, 17.36.160, 17.40.340, 17.40.380, 17.40.470 (17.12, 17.24, 17.28, 17.36, 17.40)
Amdt. 1	Amends § 15 of Ord. BL2022-1121 (Special)
Amdt. 2	Amends § 1 of Ord. BL2022-1121 (17.12)
BL2022-1122	Amends §§ 2.226.060, 2.226.080, 17.04.060, 17.12.090, 17.20.120, 17.24.010, 17.24.075, 17.24.080, 17.28.020; repeals §§ 17.24.090—17.24.110; adds § 17.28.065; amends §§ 17.36.160, 17.40.440; repeals § 17.40.450; amends § 17.40.470 (2.226, 17.04, 17.12, 17.20, 17.24, 17.28, 17.36, 17.40)
Amdt. 1	Amends § 16 of Ord. BL2022-1122 (Special)
BL2022-1123	Grants an easement (Special)
Amdt. 1	Amends recitals of Ord. BL2022-1123 (Special)
BL2022-1124	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Nashville Police Department ("MNPD"), and LexisNexis Coplogic Solutions Inc. (Special)
BL2022-1125	Grants a permanent easement to the Electric Power Board (Special)
BL2022-1126	Approves an amendment to a deed of conveyance (Special)
BL2022-1127	Approves two agreements relating to the use of the properties comprising the Global Mall site (Special)
BL2022-1128	Authorizes an agreement with RW/GC Marathon Village Owner, LLC (Special)
BL2022-1129	Authorizes an agreement with Union Brick RE, LLC (Special)
BL2022-1130	Authorizes a license agreement with Cumberland River Compact (Special)
BL2022-1131	Abandons easement rights (Special)
BL2022-1132	Accepts new water and sanitary sewer mains, fire hydrant assembly and sanitary sewer manholes (Special)
BL2022-1133	Accepts new sanitary sewer main, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2022-1134	Accepts new sanitary sewer main and sanitary sewer manholes (Special)
BL2022-1135	Accepts new sanitary sewer manhole and new fire hydrant assembly (Special)
BL2022-1136	Amends official zoning map (Special)
BL2022-1137	Authorizes building material restrictions and requirements (Special)
BL2022-1138	Amends official zoning map (Special)
BL2022-1139	Authorizes building material restrictions and requirements (Special)
BL2022-1140	Amends official zoning map (Special)
BL2022-1141	Authorizes building material restrictions and requirements (Special)
BL2022-1142	Amends official zoning map (Special)
BL2022-1143	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2022-1144	Authorizes building material restrictions and requirements (Special)
BL2022-1145	Amends official zoning map (Special)
BL2022-1146	Amends official zoning map (Special)
BL2022-1147	Amends official zoning map (Special)
BL2022-1148	Amends official zoning map (Special)
BL2022-1149	Amends official zoning map (Special)
BL2022-1150	Amends official zoning map (Special)
BL2022-1151	Amends official zoning map (Special)
BL2022-1152	(Deferred indefinitely)
BL2022-1153	Amends official zoning map (Special)
BL2022-1154	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2022-1154 (Special)
BL2022-1155	(Deferred indefinitely)
BL2022-1156	(Deferred indefinitely)
BL2022-1157	Amends official zoning map (Special)
BL2022-1158	Authorizes building material restrictions and requirements (Special)
BL2022-1159	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2022-1159 (Special)
BL2022-1160	Authorizes building material restrictions and requirements (Special)
BL2022-1161	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2022-1161 (Special)
BL2022-1162	Amends official zoning map (Special)
BL2022-1163	(Deferred indefinitely)
BL2022-1164	Amends §§ 9.30.010, 9.30.030 (9.30)
BL2022-1165	Amends § 10.60.020 (10.60)
Amdt. 1	Amends § 1 of Ord. BL2022-1165 (10.60)
BL2022-1166	(Deferred indefinitely)
BL2022-1167	Approves a lease agreement between the Metropolitan Government of Nashville and Davidson County and the Nashville Soccer Club (Special)
Amdt. 1	Amends recitals of Ord. BL2022-1167 (Special)
BL2022-1168	(Deferred indefinitely)
BL2022-1169	(Withdrawn)
BL2022-1170	Authorizes the Health and Educational Facilities Board of the Metropolitan Government of Nashville and Davidson County to negotiate and accept payments in lieu of ad valorem taxes from its lessees operating mixed-income multifamily housing facilities including housing for low- and moderate-income persons and approving the program for determining qualifications and eligibility for such payments (Special)
BL2022-1171	Designates public property within specified areas of downtown as a temporary "Special Event Zone" (Special)
BL2022-1172	Approves a contract between the Metropolitan Government of Nashville and Davidson County and CSS International, Inc. (Special)
BL2022-1173	Approves a master agreement between the Metropolitan Government of Nashville and Davidson County and JPMorgan Chase Bank, N.A. (Special)
BL2022-1174	Approves a master agreement between the Metropolitan Government of Nashville and Davidson County and Cargill, Inc. (Special)
BL2022-1175	Amends §§ 1.01.010—1.01.050 (1.01)
BL2022-1176	Abandons easement rights (Special)
BL2022-1177	Authorizes an agreement with Rock Block Flats, LLC (Special)
BL2022-1178	Authorizes the metropolitan government to negotiate and accept a permanent easement (Special)
BL2022-1179	Accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2022-1180	Abandons existing fire hydrant assembly and accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1181	Accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2022-1182	Accepts a new sanitary sewer manhole and easement (Special)
BL2022-1183	Accepts new sanitary sewer force main, appurtenance and easements (Special)
BL2022-1184	Abandons existing water main and easements, and accepts a new water main, fire hydrant assemblies and easements (Special)
BL2022-1185	Accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2022-1186	Accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2022-1187	Accepts new sanitary sewer main and sanitary sewer manhole (Special)
BL2022-1188	Abandons existing sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assembly and easements, and accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2022-1189	Abandons existing public sanitary sewer main, sanitary sewer manhole and easement, and accepts new sanitary sewer main, sanitary sewer manhole and easement (Special)

Ordinance Number	Disposition
BL2022-1190	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2022-1190 (Special)
BL2022-1191	Authorizes building material restrictions and requirements (Special)
BL2022-1192	Amends official zoning map (Special)
BL2022-1193	Amends official zoning map (Special)
BL2022-1194	Authorizes building material restrictions and requirements (Special)
BL2022-1195	Amends official zoning map (Special)
BL2022-1196	Amends official zoning map (Special)
BL2022-1197	Amends official zoning map (Special)
BL2022-1198	Amends official zoning map (Special)
BL2022-1199	Amends official zoning map (Special)
BL2022-1200	Amends official zoning map (Special)
BL2022-1201	Authorizes building material restrictions and requirements (Special)
BL2022-1202	Amends official zoning map (Special)
BL2022-1203	Amends official zoning map (Special)
BL2022-1204	Amends official zoning map (Special)
Amdt. 1	Amends § 4 and substitutes SP plans of Ord. BL2022-1204 (Special)
BL2022-1205	Authorizes building material restrictions and requirements (Special)
BL2022-1206	Amends official zoning map (Special)
BL2022-1207	Amends official zoning map (Special)
BL2022-1208	Amends official zoning map (Special)
BL2022-1209	(Deferred indefinitely)
BL2022-1210	Amends official zoning map (Special)
BL2022-1211	Amends official zoning map (Special)
BL2022-1212	Approves a participation agreement between the Metropolitan Government of Nashville and Davidson County, through the Metropolitan Board of Parks and Recreation, and CRP/WP Alta Metro Center Owner, LLC (Special)
BL2022-1213	Amends §§ 6.81.005, 6.81.015, 6.81.060, 6.81.080, 6.81.100, 6.81.130—6.81.150, 6.81.170, 6.81.180, 6.81.200 (6.81)
Amdt. 1	Amends § 12 of Ord. BL2022-1213 (6.81)
BL2022-1214	Adds § 15.36.130 (15.36)
BL2022-1215	Amends §§ 16.04.177, 16.12.220, 16.16.400, 16.20.250, 16.28.110 (16.04, 16.12, 16.16, 16.20, 16.28)
BL2022-1216	Amends §§ 17.08.030, 17.16.220, 17.37.010 (17.08, 17.16, 17.37)
BL2022-1217	Approves a contract between the Metropolitan Government of Nashville and Davidson County and Oracle (Special)
BL2022-1218	Authorizes an agreement with 804 14th Avenue North, LLC (Special)
BL2022-1219	Accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2022-1220	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1221	Accepts new sanitary sewer and water mains, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2022-1222	Abandons existing sanitary sewer main and easements and accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1223	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1224	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1225	Accepts the relocation and replacement of a fire hydrant assembly and permanent easement (Special)
BL2022-1226	Accepts new sanitary sewer main and sanitary sewer manhole (Special)
BL2022-1227	Relocates a public fire hydrant assembly (Special)
BL2022-1228	Authorizes the metropolitan government to negotiate and accept a permanent easement (Special)
BL2022-1229	Abandons existing stormwater easement rights (Special)
BL2022-1230	Amends official zoning map (Special)
BL2022-1231	Authorizes building material restrictions and requirements (Special)
BL2022-1232	Amends official zoning map (Special)
BL2022-1233	Authorizes building material restrictions and requirements (Special)
BL2022-1234	Designates public property within specified areas of downtown Nashville as a temporary "Special Event Zone" (Special)
BL2022-1235	Accepts new public sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2022-1236	Abandons existing public water mains, and accepts new public water mains and fire hydrant assemblies (Special)
BL2022-1237	Abandons existing fire hydrant assemblies and easements, and accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1238	Abandons existing sanitary sewer main and easement, and accepts new sanitary sewer main, sanitary sewer manhole and easement (Special)

Ordinance Number	Disposition
BL2022-1239	Accepts new sanitary sewer main and sanitary sewer manhole (Special)
BL2022-1240	Accepts new sanitary sewer and sanitary sewer force mains, sanitary sewer manholes and easements (Special)
BL2022-1241	Accepts public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1242	Abandons existing public sanitary sewer easement rights (Special)
BL2022-1243	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1244	Abandons existing water main, and accepts new water main (Special)
BL2022-1245	Accepts a new public sanitary sewer manhole (Special)
BL2022-1246	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1247	Amends official zoning map (Special)
BL2022-1248	Budget ordinance for fiscal year 2023 (Special)
Amdts. A—D	Amends Ord. BL2022-1248 (Special)
BL2022-1249	Establishes tax levy in the General Services District for fiscal year 2022—2023 (Special)
BL2022-1250	(Withdrawn)
BL2022-1251	Amends § 5.04.120 (5.04)
BL2022-1252	(Withdrawn)
BL2022-1253	Creates the positions of Apprentice, Compliance Monitor - Senior, Compliance Monitor, Fire Logistics and Inventory Clerk, Human Resources Specialist, Safety Specialist, Short Term Rental Inspection Chief, Short Term Rental Inspector, Treasury Analyst - Senior, and Treasury Analyst (Special)
BL2022-1254	Authorizes a technology fee to fund the technology required by the community development and regulation processes and establishes the ITS Technology Fund (Special)
BL2022-1255	Approves an agreement for a greenway conservation easement by and between PRII/SH Peabody Union Apartments Owner, LLC and the metropolitan government (Special)
Amdt. 1	Amends § 1 of Ord. BL2022-1255 (Special)
Amdt. 2	Amends § 1 of Ord. BL2022-1255 (Special)
BL2022-1256	Amends the geographic information systems street and alley centerline layer (Special)
BL2022-1257	Authorizes Fourth and Broad, L.P., to install, construct and maintain underground encroachments in the right-of-way located 405 Broadway (Special)
BL2022-1258	Authorizes Propco 609 Merritt LLC to install, construct and maintain underground encroachments in the right-of-way located 609 Merritt Avenue (Special)
BL2022-1259	Abandons existing electrical easement rights (Special)
BL2022-1260	Abandons existing public water main, and accepts new public water main, fire hydrant assemblies and sanitary sewer manhole (Special)
BL2022-1261	Accepts new sanitary sewer main, sanitary sewer manhole and easements (Special)
BL2022-1262	Abandons existing public water main and easement, relocates a public fire hydrant assembly, and accepts a permanent easement (Special)
BL2022-1263	Accepts new public sanitary sewer mains, sanitary sewer manholes, and easements and adjusts three sanitary sewer manholes (Special)
BL2022-1264	Accepts a new fire hydrant assembly and easement (Special)
BL2022-1265	Accepts a sanitary sewer manhole (Special)
BL2022-1266	Abandons existing public sanitary sewer main and easement, and accepts new public sanitary sewer mains, sanitary sewer manholes and easement (Special)
BL2022-1267	Accepts new water and sanitary sewer mains, fire hydrant assembly, sanitary sewer manholes and easements (Special)
BL2022-1268	Adopts capital improvements budget and program 2022—2023 through 2027—2028 (Special)
Amdts. A—D	Amends list of projects of Ord. BL2022-1268 (Special)
BL2022-1269	Amends § 2.80.020 (2.80)
Amdt. 1	Amends § 1 of Ord. BL2022-1269 (2.80)
BL2022-1270	Amends § 17.12.030 (17.12)
Amdt. 1	Amends § 1 of Ord. BL2022-1270 (17.12)
BL2022-1271	(Deferred indefinitely)
BL2022-1272	Approves a lease agreement between the Metropolitan Government of Nashville and Davidson County by and through the Mayor's Office of Emergency Management and the Department of General Services and the Community Resource Center (Special)
BL2022-1273	Grants the purchasing agent the authority to extend the term of contract number 422444 (Special)

Ordinance Number	Disposition
BL2022-1274	Approves a revised organizational plan for the Metropolitan Public Health Department (Special)
BL2022-1275	Accepts a greenway conservation easement (Special)
Amdt. 1	Replaces attachment of Ord. BL2022-1275 (Special)
Amdt. 2	Amends § 1 of Ord. BL2022-1275 (Special)
BL2022-1276	Approves a license agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Board of Parks and Recreation, and the Nashville Food Project (Special)
BL2022-1277	Approves a license agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Board of Parks and Recreation, and the Lamar Companies (Special)
BL2022-1278	Authorizes the metropolitan government to negotiate and accept permanent easements (Special)
BL2022-1279	Abandons existing sanitary sewer main, sanitary sewer manhole, and easement rights, and rehabilitates sanitary sewer main and sanitary sewer manholes (Special)
BL2022-1280	Accepts new water and sanitary sewer mains, fire hydrant assembly, sanitary sewer manholes and easements and relocates a fire hydrant assembly (Special)
BL2022-1281	Accepts new sanitary sewer mains, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2022-1282	Abandons existing public water main and fire hydrant assemblies, and accepts new public water main and fire hydrant assemblies (Special)
BL2022-1283	Accepts a public fire hydrant assembly and easement (Special)
BL2022-1284	Abandons existing sanitary sewer main, sanitary sewer manhole and easements, and accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2022-1285	Amends official zoning map (Special)
BL2022-1286	Amends official zoning map (Special)
BL2022-1287	Authorizes building material restrictions and requirements (Special)
BL2022-1288	Amends official zoning map (Special)
BL2022-1289	Authorizes building material restrictions and requirements (Special)
BL2022-1290	Amends official zoning map (Special)
BL2022-1291	Amends official zoning map (Special)
BL2022-1292	Amends official zoning map (Special)
BL2022-1293	Authorizes building material restrictions and requirements (Special)
BL2022-1294	Amends official zoning map (Special)
BL2022-1295	Amends official zoning map (Special)
BL2022-1296	Amends official zoning map (Special)
BL2022-1297	Amends official zoning map (Special)
BL2022-1298	Amends official zoning map (Special)
BL2022-1299	Amends official zoning map (Special)
BL2022-1300	Amends official zoning map (Special)
BL2022-1301	Amends official zoning map (Special)
BL2022-1302	Amends official zoning map (Special)
BL2022-1303	Amends official zoning map (Special)
BL2022-1304	Amends official zoning map (Special)
BL2022-1305	Amends official zoning map (Special)
BL2022-1306	Authorizes building material restrictions and requirements (Special)
BL2022-1307	Amends official zoning map (Special)
BL2022-1308	Amends official zoning map (Special)
BL2022-1309	Amends official zoning map (Special)
BL2022-1310	Amends official zoning map (Special)
BL2022-1311	Authorizes building material restrictions and requirements (Special)
BL2022-1312	Amends official zoning map (Special)
BL2022-1313	Authorizes building material restrictions and requirements (Special)
BL2022-1314	Amends official zoning map (Special)
BL2022-1315	Amends official zoning map (Special)
BL2022-1316	Amends official zoning map (Special)
BL2022-1317	Amends official zoning map (Special)
BL2022-1318	Amends official zoning map (Special)
BL2022-1319	Authorizes building material restrictions and requirements (Special)
BL2022-1320	Amends official zoning map (Special)
BL2022-1321	Amends official zoning map (Special)
BL2022-1322	Amends official zoning map (Special)
BL2022-1323	Amends official zoning map (Special)
BL2022-1324	Amends official zoning map (Special)
BL2022-1325	Amends official zoning map (Special)
BL2022-1326	Amends official zoning map (Special)
BL2022-1327	Amends official zoning map (Special)
BL2022-1328	Amends §§ 17.08.030.D., 17.16.060.B. (17.08, 17.16)
BL2022-1329	Permits the Metropolitan Tourism and Convention Commission to hold its public meetings at the offices of the Nashville Convention & Visitors Corp. (Special)
BL2022-1330	(Withdrawn)
BL2022-1331	Renames the WeGo Central public transit station of the Metropolitan Transit Authority located at 400 Dr. Martin L. King, Jr. Blvd. as the "Elizabeth Duff Transit Center at WeGo Central" (Special)

Ordinance Number	Disposition
BL2022-1332	Names the North Nashville Transit Center, to be located at 2521 Clarksville Highway at 26th Avenue North, under the operation of the Metropolitan Transit Authority as the "Ernest 'Rip' Patton North Nashville Transit Center" (Special)
BL2022-1333	Amends §§ 1.01.010—1.01.050 (1.01)
BL2022-1334	Amends the geographic information systems street and alley centerline layer (Special)
BL2022-1335	Abandons existing storm sewer line, storm catch basins and easement rights (Special)
BL2022-1336	Accepts new sanitary sewer manholes (Special)
BL2022-1337	Abandons existing public sanitary sewer main and sanitary sewer manholes, and accepts new sanitary sewer manhole (Special)
BL2022-1338	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1339	Amends official zoning map (Special)
BL2022-1340	Authorizes building material restrictions and requirements (Special)
BL2022-1341	Amends official zoning map (Special)
BL2022-1342	Authorizes building material restrictions and requirements (Special)
BL2022-1343	Adds § 3.06.010 (3.06)
Amdt. 1	Amends § 1 of Ord. BL2022-1343 (3.06)
BL2022-1344	(Withdrawn)
BL2022-1345	Amends § 15.68.030 (15.68)
BL2022-1346	Amends §§ 17.04.060, 17.12.040, 17.12.060 (17.04, 17.12)
BL2022-1347	(Deferred indefinitely)
BL2022-1348	Amends § 5.24.010 (5.24)
BL2022-1349	(Withdrawn)
BL2022-1350	Authorizes the metropolitan government to negotiate and accept permanent easements (Special)
BL2022-1351	(Deferred indefinitely)
BL2022-1352	Relocates a fire hydrant assembly (Special)
BL2022-1353	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1354	Abandons existing water and combination sewer mains, combination sewer manholes and easements, relocates a fire hydrant assembly, and accepts new water and combination sewer mains, combination sewer manholes and easements (Special)
BL2022-1355	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1356	Accepts a new sanitary sewer main, sanitary sewer manhole and easements (Special)
BL2022-1357	Amends official zoning map (Special)
Amdt. 1	Adds a new § 2 and renumbers subsequent sections of Ord. BL2022-1357 (Special)
BL2022-1358	Amends official zoning map (Special)
Amdt. 1	Deletes and replaces § 2 and adds new § 8 and renumbers subsequent sections of Ord. BL2022-1358 (Special)
BL2022-1359	Authorizes building material restrictions and requirements (Special)
BL2022-1360	Amends official zoning map (Special)
Amdt. 1	Deletes and replaces § 2 and adds new § 8 and renumbers subsequent sections of Ord. BL2022-1360 (Special)
BL2022-1361	Amends official zoning map (Special)
Amdt. 1	Adds a new § 2 and renumbers subsequent sections of Ord. BL2022-1361 (Special)
BL2022-1362	Amends official zoning map (Special)
Amdt. 1	Adds a new § 2 and renumbers subsequent sections of Ord. BL2022-1362 (Special)
BL2022-1363	Amends official zoning map (Special)
Amdt. 1	Deletes and replaces § 2 and adds new § 8 and renumbers subsequent sections of Ord. BL2022-1363 (Special)
BL2022-1364	Authorizes building material restrictions and requirements (Special)
BL2022-1365	Authorizes building material restrictions and requirements (Special)
BL2022-1366	(Failed)
BL2022-1367	Amends official zoning map (Special)
Amdt. 1	Adds a new § 2 and renumbers subsequent sections of Ord. BL2022-1367 (Special)
BL2022-1368	Amends official zoning map (Special)
Amdt. 1	Adds a new § 2 and renumbers subsequent sections of Ord. BL2022-1368 (Special)
BL2022-1369	(Deferred indefinitely)
BL2022-1370	Authorizes building material restrictions and requirements (Special)
BL2022-1371	Amends official zoning map (Special)
BL2022-1372	Amends § 2.210.030 (2.210)
BL2022-1373	Amends §§ 10.64.010, 10.64.012 (10.64)
BL2022-1374	Amends § 15.48.300 (15.48)
BL2022-1375	Grants permanent and temporary construction easements (Special)
BL2022-1376	Authorizes the acquisition and conveyance of certain right-of-way easements, drainage easements, temporary construction easements and property rights by negotiation or condemnation (Special)
BL2022-1377	Abandons existing sanitary sewer easement rights (Special)
BL2022-1378	Abandons existing public sanitary sewer main and sanitary sewer manholes, and accepts new sanitary sewer main and sanitary sewer manholes (Special)

Ordinance Number	Disposition
BL2022-1379	(Deferred indefinitely)
BL2022-1380	Amends § 2.178.010 (2.178)
RS2022-1380	Amends § 17.16.250.D.9. (17.16)
BL2022-1381	Adds § 5.04.160 (5.04)
BL2022-1382	Amends § 5.20.100 (5.20)
Amdt. 1	Amends § 2 of Ord. BL2022-1382 (5.20)
BL2022-1383	Adds Ch. 10.19 and §§ 10.19.010—10.19.050 (5.11)
Amdts. 1—3	Amends § 1 of Ord. BL2022-1383 (10.19)
BL2022-1384	(Withdrawn)
BL2022-1385	Adds § 13.08.080.G.1.(a)ii.(7) (13.08)
BL2022-1386	Approves a contract between the Metropolitan Government of Nashville and Davidson County, acting by and through the Mayor's Office, and the United Way of Middle Tennessee (Special)
BL2022-1387	(Failed)
BL2022-1388	Amends the geographic information systems street and alley centerline layer (Special)
BL2022-1389	Accepts and adjusts sanitary sewer manholes (Special)
BL2022-1390	Accepts sanitary sewer manholes (Special)
BL2022-1391	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1392	Accepts new sanitary sewer main and sanitary sewer manhole (Special)
BL2022-1393	Accepts new sanitary sewer main and sanitary sewer manhole (Special)
BL2022-1394	Amends official zoning map (Special)
Amdt. 1	Adds a new § 7 and renumbers subsequent sections of Ord. BL2022-1394 (Special)
Amdt. 2	Amends § 3 of Ord. BL2022-1394 (Special)
BL2022-1395	Authorizes building material restrictions and requirements (Special)
BL2022-1396	Amends official zoning map (Special)
Amdt. 1	Adds a new § 2 and renumbers subsequent sections of Ord. BL2022-1396 (Special)
BL2022-1397	Amends official zoning map (Special)
Amdt. 1	Adds a new § 7 and renumbers subsequent sections of Ord. BL2022-1397 (Special)
BL2022-1398	Authorizes building material restrictions and requirements (Special)
BL2022-1399	(Withdrawn)
BL2022-1400	Amends official zoning map (Special)
Amdt. 1	Adds a new § 7 and renumbers subsequent sections of Ord. BL2022-1400 (Special)
Amdt. 2	Amends §§ 2 and 3 of Ord. BL2022-1400 (Special)
BL2022-1401	Amends official zoning map (Special)
Amdt. 1	Adds a new § 2 and renumbers subsequent sections of Ord. BL2022-1401 (Special)
BL2022-1402	Amends official zoning map (Special)
BL2022-1403	(Withdrawn)
BL2022-1404	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2022-1404 (Special)
BL2022-1405	Amends § 13.32.165 (13.32)
Amdt. 1	Amends § 1 of Ord. BL2022-1405 (13.32)
BL2022-1406	Abandons existing stormwater drainage easement rights (Special)
BL2022-1407	Relocates a public fire hydrant assembly (Special)
BL2022-1408	Abandons existing water mains and easements, relocates a fire hydrant assembly, and accepts new water main, fire hydrant assemblies, and easements (Special)
BL2022-1409	(Withdrawn)
BL2022-1410	(Deferred indefinitely)
BL2022-1411	(Deferred indefinitely)
BL2022-1412	Amends § 17.12.070.D., Table 17.20.030, §§ 17.20.040.G., 17.36.440, 17.37.010 (17.12, 17.20, 17.36, 17.37)
BL2022-1413	Approves an agreement between the Mental Health Cooperative ("MHC"), and the Metropolitan Government of Nashville and Davidson County, by and through the Davidson County General Sessions Court Division II (GSDII) (Special)
BL2022-1414	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Davidson County Recovery Court ("Court"), and Belmont University ("Belmont") (Special)
BL2022-1415	Creates a Tax Incentive and Abatement Study and Formulating Committee (Special)
BL2022-1416	Authorizes McGavock Apartment Venture, LLC to install, construct and maintain underground encroachments in the right of way located 1212 McGavock Street (Special)
BL2022-1417	Abandons existing stormwater drainage easement rights (Special)
BL2022-1418	Accepts new water and sanitary sewer mains, fire hydrant assembly, sanitary sewer manholes and easements, and relocates a fire hydrant assembly, for three properties (Special)
BL2022-1419	Abandons existing public sanitary sewer main and easements, and accepts new sanitary sewer main, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2022-1420	Abandons existing sanitary sewer main, sanitary sewer manhole and easements, and accepts new sanitary sewer main, sanitary sewer manhole and easements (Special)

Ordinance Number	Disposition
BL2022-1421	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1422	Accepts new public sanitary sewer main, sanitary sewer manholes, and easements (Special)
BL2022-1423	Abandons existing public water main, relocates a public fire hydrant assembly, and accepts a new public water main and public fire hydrant assembly (Special)
BL2022-1424	Abandons existing public water main and easement, relocates a public fire hydrant assembly, and accepts a new public water main and easement (Special)
BL2022-1425	Accepts the relocation and vertical adjustment of existing water main, for property located at 203 Oceola Avenue #1 (Special)
BL2022-1426	Abandons existing public water main, and accepts new public water main (Special)
BL2022-1427	Accepts new sanitary sewer main and sanitary sewer manhole (Special)
BL2022-1428	Abandons existing public water main, relocates a public fire hydrant assembly, and accepts a new public water main (Special)
BL2022-1429	Accepts the relocation of a fire hydrant assembly (Special)
BL2022-1430	Abandons existing public utility easement rights (Special)
BL2022-1431	Accepts the relocation of a fire hydrant assembly for property located at 820 4th Avenue North (Special)
BL2022-1432	(Deferred indefinitely)
BL2022-1433	Amends official zoning map (Special)
BL2022-1434	Amends official zoning map (Special)
BL2022-1435	Amends official zoning map (Special)
BL2022-1436	Authorizes building material restrictions and requirements (Special)
BL2022-1437	Amends official zoning map (Special)
BL2022-1438	Amends official zoning map (Special)
BL2022-1439	Amends official zoning map (Special)
BL2022-1440	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2022-1440 (Special)
BL2022-1441	(Withdrawn)
BL2022-1442	(Withdrawn)
BL2022-1443	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2022-1443 (Special)
BL2022-1444	Authorizes building material restrictions and requirements (Special)
BL2022-1445	Amends official zoning map (Special)
BL2022-1446	Amends official zoning map (Special)
BL2022-1447	Amends official zoning map (Special)
BL2022-1448	Authorizes building material restrictions and requirements (Special)
BL2022-1449	(Withdrawn)
BL2022-1450	(Deferred indefinitely)
BL2022-1451	Approves a license agreement between the Metropolitan Government of Nashville and Davidson County and Vanderbilt University (Special)
BL2022-1452	Approves a license agreement between the Metropolitan Government of Nashville and Davidson County by and through the Department of General Services and the Salvation Army (Special)
BL2022-1453	Grants a permanent easement to Piedmont Natural Gas Co. (Special)
BL2022-1454	Grants easements to Harpeth Valley Utilities District of Davidson and Williamson Counties, Tennessee (Special)
BL2022-1455	Amends the geographic information systems street and alley centerline layer (Special)
BL2022-1456	Amends the geographic information systems street and alley centerline layer (Special)
BL2022-1457	Authorizes the abandonment and conveyance of the Metropolitan Government's interest in Alley 68 in downtown Nashville and approves an easement and agreement providing for the Metropolitan Government's use of certain space in improvements to be constructed in the former alley (Special)
BL2022-1458	Authorizes 915 Division Manager, LLC to install, construct and maintain underground encroachments (Special)
BL2022-1459	Abandons easement rights (Special)
BL2022-1460	Abandons easement rights (Special)
BL2022-1461	Abandons an existing public utility easement (Special)
BL2022-1462	Abandons existing water main and easement, and accepts new water and sanitary sewer mains, fire hydrant assemblies, check valve assembly, sanitary sewer manholes and easements (Special)
BL2022-1463	Abandons existing public sanitary sewer main, sanitary sewer manhole and easement (Special)
BL2022-1464	Accepts public fire hydrant assembly and public sanitary sewer manhole (Special)
BL2022-1465	Accepts new fire hydrant assembly and public sanitary sewer manholes (Special)
BL2022-1466	Abandons existing water main and easement, relocates fire hydrant assemblies, and accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)

Ordinance Number	Disposition
BL2022-1467	Accepts new public sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2022-1468	(Withdrawn)
BL2022-1469	Amends official zoning map (Special)
Amdt. 1	Substitutes UDO plan of Ord. BL2022-1469 (Special)
BL2022-1470	Adds § 13.08.080.J. (13.08)
BL2022-1471	Amends §§ 16.24.030, 17.04.060 (16.24, 17.04)
Amdts. A—C	Amends §§ 1 and 3 of Ord. BL2022-1471 (16.24, 17.04)
BL2022-1472	Amends §§ 17.37.010, 17.40.170.C. (17.37, 17.40)
BL2022-1473	Amends § 17.40.010.I.1. (17.40)
BL2022-1474	Approves a contract between the Metropolitan Government of Nashville and Davidson County and Granicus, LLC (Special)
BL2022-1475	Approves an agreement by and between the Metropolitan Government and LAZ Parking Georgia, LLC (Special)
BL2022-1476	Amends §§ 1.01.010—1.01.050 (1.01)
BL2022-1477	Accepts a public fire hydrant assembly for property located at 3887 Central Pike (Special)
BL2022-1478	Accepts a public fire hydrant assembly for property located at 245 B Hermitage Avenue (Special)
BL2022-1479	(Deferred indefinitely)
BL2022-1480	(Withdrawn)
BL2022-1481	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2022-1481 (Special)
BL2022-1482	Authorizes building material restrictions and requirements (Special)
BL2022-1483	Amends official zoning map (Special)
BL2022-1484	Authorizes building material restrictions and requirements (Special)
BL2022-1485	Authorizes building material restrictions and requirements (Special)
BL2022-1486	Amends official zoning map (Special)
BL2022-1487	Authorizes building material restrictions and requirements (Special)
BL2022-1488	Amends official zoning map (Special)
BL2022-1489	Amends official zoning map (Special)
BL2022-1490	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2022-1490 (Special)
Amdt. 2	Amends § 4 of Ord. BL2022-1490 (Special)
BL2022-1491	Authorizes building material restrictions and requirements (Special)
BL2022-1492	Amends official zoning map (Special)
BL2022-1493	Amends official zoning map (Special)
BL2022-1494	Amends official zoning map (Special)
BL2022-1495	Amends official zoning map (Special)
BL2022-1496	Amends official zoning map (Special)
BL2022-1497	Amends official zoning map (Special)
BL2022-1498	Amends official zoning map (Special)
BL2022-1499	Amends official zoning map (Special)
BL2022-1500	Amends official zoning map (Special)
BL2022-1501	Amends official zoning map (Special)
BL2022-1502	(Withdrawn)
BL2022-1503	Amends official zoning map (Special)
BL2022-1504	Authorizes building material restrictions and requirements (Special)
BL2022-1505	Amends official zoning map (Special)
BL2022-1506	Adds § 5.16.055 (5.16)
BL2022-1507	Authorizes the execution of the first amendment to the Sublease agreement between OliverMcMillan Spectrum Emery, LLC and the Metropolitan Government of Nashville and Davidson County (Special)
BL2022-1508	Amends §§ 17.08.030, 17.16.030, 17.16.160 (17.08, 17.16)
BL2022-1509	Adds Ch. 17.36, Art. XVI, §§ 17.36.630—17.36.675; amends § 17.40.740 (17.36, 17.40)
Amdt. 1	Amends § 1 of Ord. BL2022-1509 (17.36)
BL2022-1510	Designates public property within specified areas of downtown Nashville as a temporary "Special Event Zone" (Special)
BL2022-1511	Approves a lease agreement by and between the Metropolitan Government of Nashville and Davidson County acting by and through the Metropolitan Board of Education and Conexion Americas (Special)
BL2022-1512	Abandons existing public stormwater drainage easement rights (Special)
BL2022-1513	Authorizes the metropolitan government to negotiate and accept temporary and permanent easements (Special)
BL2022-1514	Authorizes the metropolitan government to negotiate and accept temporary and permanent easements (Special)
BL2022-1515	Authorizes the metropolitan government to negotiate and accept temporary and permanent easements (Special)
BL2022-1516	Abandons existing public water main, and accepts new public water main (Special)
BL2022-1517	Abandons existing public water main, and accepts new water main (Special)
BL2022-1518	Accepts new public sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2022-1519	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1520	Abandons existing public water main, and accepts new public water main (Special)

Ordinance Number	Disposition
BL2022-1521	Accepts new public sanitary sewer main and sanitary sewer manholes (Special)
BL2022-1522	Accepts new sanitary sewer main and sanitary sewer manhole (Special)
BL2022-1523	Accepts the relocation of a public fire hydrant assembly for property located at 3220 Charlotte Avenue (Special)
BL2022-1524	Accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2022-1525	Amends official zoning map (Special)
BL2022-1526	Amends official zoning map (Special)
BL2022-1527	Amends Ordinance No. BL2022-1415 regarding the makeup of the Tax Incentive and Abatement Study and Formulating Committee membership (Special)
BL2022-1528	Amends §§ 2.88.020, 2.100.010, 2.116.020, 2.128.030, 2.132.030, 2.149.020, 2.222.040, 6.08.080, 6.28.035, 7.04.020, 15.64.040, 15.64.070 (2.88, 2.100, 2.116, 2.128, 2.132, 2.149, 2.222, 6.08, 6.28, 7.04, 15.64)
BL2022-1529	Adds Ch. 5.12, Art. III and § 5.12.150 (5.12)
Amdt. 1	Amends fourth recital and § 4 of Ord. BL2022-1529 (Special)
Amdt. 2	Adds a new section to Ord. BL2022-1529 (Special)
BL2022-1530	Amends §§ 13.20.020, 13.20.030, 13.20.095, 13.20.120, 13.20.140; adds § 13.20.160 (13.20)
Amdt. 1	Amends §§ 3, 4 and 8 of Ord. BL2022-1530 (13.20)
BL2022-1531	Amends § 17.16.030 (17.16)
Amdt. 1	Amends § 1 of Ord. BL2022-1531 (17.16)
BL2022-1532	Extends the boundaries of the Urban Services District within the jurisdiction of the Metropolitan Government of Nashville and Davidson County (Special)
BL2022-1533	Sets conditions for the closure of an encampment at Brookmeade Park and accepts an easement on certain property (Special)
BL2022-1534	Accepts a donation of real property (Special)
BL2022-1535	Authorizes execution of quitclaim deed (Special)
Amdt. 1	Adds new §§ 2 and 3, renumbers subsequent sections, and replaces exhibit of Ord. BL2022-1535 (Special)
BL2022-1536	Removes existing sanitary sewer main, abandons existing sanitary sewer main, sanitary sewer manholes and easements, and accepts new sanitary sewer and water mains, sanitary sewer manholes and easements (Special)
BL2022-1537	Abandons existing sanitary sewer main, sanitary sewer manholes and easements, and accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2022-1538	Accepts new sanitary sewer manhole (Special)
BL2022-1539	Abandons existing water and sanitary sewer mains, sanitary sewer manhole and easements, replaces an existing sanitary sewer manhole, and accepts new water and sanitary sewer mains, fire hydrant assembly, sanitary sewer manholes and easements (Special)
BL2022-1540	Accepts new public fire hydrant assembly (Special)
BL2022-1541	Accepts new sanitary sewer main, sanitary sewer manholes, fire hydrant assembly and easements (Special)
BL2022-1542	Abandons existing public water main, and accepts new public water main and fire hydrant assembly (Special)
BL2022-1543	Amends official zoning map (Special)
BL2022-1544	Authorizes building material restrictions and requirements (Special)
BL2022-1545	Amends official zoning map (Special)
BL2022-1546	Authorizes building material restrictions and requirements (Special)
BL2022-1547	Amends official zoning map (Special)
BL2022-1548	Amends official zoning map (Special)
BL2022-1549	Amends official zoning map (Special)
BL2022-1550	Authorizes building material restrictions and requirements (Special)
BL2022-1551	Amends official zoning map (Special)
BL2022-1552	Amends official zoning map (Special)
BL2022-1553	Amends official zoning map (Special)
BL2022-1554	Amends official zoning map (Special)
BL2022-1555	Amends official zoning map (Special)
BL2022-1556	Amends official zoning map (Special)
BL2022-1557	Authorizes building material restrictions and requirements (Special)
BL2022-1558	(Withdrawn)
BL2022-1559	(Withdrawn)
BL2022-1560	Amends official zoning map (Special)
BL2022-1561	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2022-1561 (Special)
BL2022-1562	Authorizes building material restrictions and requirements (Special)
BL2022-1563	Amends official zoning map (Special)
BL2022-1564	Amends official zoning map (Special)
BL2022-1565	Amends official zoning map (Special)
BL2022-1566	(Withdrawn)
BL2022-1567	Amends official zoning map (Special)
BL2022-1568	Amends official zoning map (Special)
BL2022-1569	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2022-1570	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2022-1570 (Special)
Amdt. 2	Substitutes the SP plans of Ord. BL2022-1570 (Special)
BL2022-1571	(Withdrawn)
BL2022-1572	Amends § 12.12.190 (12.12)
BL2022-1573	Approves an agreement between the Metropolitan Government and Market-Street Management, LLC (Special)
BL2022-1574	Provides the honorary street name designation of "Valor Memorial Lane" for a portion of McCrory Lane (Special)
BL2022-1575	Accepts new sanitary sewer main and sanitary sewer manhole (Special)
BL2022-1576	Abandons existing public water mains, and accepts new water main and sanitary sewer manhole (Special)
BL2022-1577	Accepts new water main (Special)
BL2022-1578	Amends official zoning map (Special)
BL2022-1579	Amends § 6.28.035 (6.28)
BL2022-1580	Amends § 15.16.370 (15.16)
BL2022-1581	Amends §§ 17.12.040, 17.28.103 (17.12, 17.28)
BL2022-1582	Establishes a program for the purpose of providing assistance to low-income elderly residents for the fiscal year 2022-2023 (Special)
BL2022-1583	Approves amendment 2 to the contract for program management services between Gobbell Hays Partners, Inc. and the Metropolitan Government of Nashville and Davidson County, which extends the contract term for an additional thirty months (Special)
BL2022-1584	Abandons public sanitary sewer mains, sanitary sewer manholes and an easement, constructs public sanitary sewer mains and sanitary sewer manholes, and acquires permanent and temporary easements through negotiation and acceptance (Special)
BL2022-1585	Abandons existing public water main and easement, and accepts new water mains, fire hydrant assemblies, sanitary sewer manhole and easements (Special)
BL2022-1586	Accepts new sanitary sewer manhole (Special)
BL2022-1587	Accepts new sanitary sewer manhole and easement (Special)
BL2022-1588	Abandons existing sanitary sewer main and sanitary sewer manhole, relocates public fire hydrant, and accepts new public sanitary sewer main and sanitary sewer manholes (Special)
BL2022-1589	Abandons existing public water main, and accepts new public water main and one sanitary sewer manhole (Special)
BL2022-1590	Accepts new public water and sanitary sewer main and sanitary sewer manhole (Special)
BL2022-1591	Abandons existing public water main, and accepts new public water main and fire hydrant assemblies (Special)
BL2022-1592	Accepts new public sanitary sewer mains, sanitary sewer manholes, and easements (Special)
BL2022-1593	Rehabilitates existing public sanitary sewer main and accepts sanitary sewer manhole (Special)
BL2022-1594	Amends official zoning map (Special)
BL2022-1595	Amends official zoning map (Special)
BL2022-1596	Amends official zoning map (Special)
BL2022-1597	Amends official zoning map (Special)
BL2022-1598	Amends official zoning map (Special)
BL2022-1599	Authorizes building material restrictions and requirements (Special)
BL2022-1600	Amends official zoning map (Special)
BL2022-1601	Amends official zoning map (Special)
BL2022-1602	Amends official zoning map (Special)
BL2022-1603	Authorizes building material restrictions and requirements (Special)
BL2022-1604	Amends official zoning map (Special)
BL2022-1605	Amends official zoning map (Special)
BL2022-1606	Amends official zoning map (Special)
BL2022-1607	Amends official zoning map (Special)
BL2022-1608	Amends official zoning map (Special)
BL2022-1609	Amends official zoning map (Special)
BL2022-1610	Amends official zoning map (Special)
BL2022-1611	Amends official zoning map (Special)
BL2022-1612	Amends official zoning map (Special)
BL2022-1613	Amends official zoning map (Special)
BL2022-1614	Amends official zoning map (Special)
BL2022-1615	Amends official zoning map (Special)
BL2022-1616	Amends official zoning map (Special)
BL2022-1617	Amends official zoning map (Special)
BL2022-1618	(Deferred indefinitely)
BL2022-1619	Amends official zoning map (Special)
BL2022-1620	Amends official zoning map (Special)
BL2022-1621	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3 and 4 of Ord. BL2022-1621 (Special)
BL2022-1622	Authorizes building material restrictions and requirements (Special)
BL2022-1623	Amends official zoning map (Special)
BL2022-1624	Authorizes building material restrictions and requirements (Special)
BL2022-1625	Amends official zoning map (Special)
BL2022-1626	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2022-1627	Authorizes building material restrictions and requirements (Special)
BL2022-1628	Amends official zoning map (Special)
BL2022-1629	Authorizes building material restrictions and requirements (Special)
BL2022-1630	(Failed)
BL2022-1631	Adds Ch. 2.147 and §§ 2.147.010—2.147.065 (2.147)
BL2022-1632	Adds § 5.04.170 (5.04)
BL2022-1633	Adds Ch. 5.22, §§ 5.22.010—5.22.120 (5.22)
BL2022-1634	Approves standardized forms, agreements, and other documents to be utilized by the metropolitan trustee in administering the C-PACER Program (Special)
BL2022-1635	Approves a participation agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Housing Division of the Metropolitan Planning Department, and Urban Housing Solutions (Special)
BL2022-1636	Approves the fourth amendment to the Lease Agreement between the Metropolitan Government of Nashville and Davidson County and the Nashville Zoo, Inc. (Special)
BL2022-1637	Approves a purchase and sale agreement between the Trust for Public Land and metropolitan government (Special)
BL2022-1638	Authorizes Newco Arc, LLC to install, construct and maintain underground encroachments (Special)
BL2022-1639	Abandons public sanitary sewer force main, constructs public sanitary sewer force main, and acquires permanent and temporary easements through negotiation, condemnation and acceptance (Special)
BL2022-1640	Accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2022-1641	Accepts new public water and sanitary sewer main and sanitary sewer manhole (Special)
BL2022-1642	Amends official zoning map (Special)
BL2022-1643	Amends official zoning map (Special)
BL2022-1644	Amends official zoning map (Special)
BL2022-1645	Amends official zoning map (Special)
BL2022-1646	Amends official zoning map (Special)
BL2023-1647	Repeals Ch. 6.104, §§ 6.104.010—6.104.040; amends §§ 13.08.040, 13.32.100; adds § 13.32.105 (6.104, 13.08, 13.32)
BL2023-1648	Amends the geographic information systems street and alley centerline layer (Special)
RS2022-1648	Amends § 10.64.018 (10.64)
BL2023-1649	Amends the geographic information systems street and alley centerline layer (Special)
BL2023-1650	Authorizes the abandonment and conveyance by quitclaim deed (Special)
BL2023-1651	Abandons public utility easement rights (Special)
BL2023-1652	Accepts a new sanitary sewer manhole (Special)
BL2023-1653	Accepts new public sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2023-1654	Abandons existing public sanitary sewer main, and accepts new public sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2023-1655	Accepts public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1656	Abandons existing public water main, and accepts new public water and sanitary sewer main, fire hydrant assembly, and sanitary sewer manholes (Special)
BL2023-1657	Accepts new water and sanitary sewer mains, fire hydrant assembly, sanitary sewer manholes and easements (Special)
BL2023-1658	Accepts new sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2023-1659	Abandons existing sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2023-1660	Abandons existing public water main, fire hydrant assembly and easements, and accepts new public water main, fire hydrant assembly and easements (Special)
BL2023-1661	Authorizes building material restrictions and requirements (Special)
BL2023-1662	Amends official zoning map (Special)
BL2023-1663	Amends official zoning map (Special)
BL2023-1664	Authorizes building material restrictions and requirements (Special)
BL2023-1665	Amends official zoning map (Special)
Amdt. 1	Adds a new § 8 and renumbers subsequent sections of Ord. BL2023-1665 (Special)
BL2023-1666	Authorizes building material restrictions and requirements (Special)
BL2023-1667	Amends official zoning map (Special)
BL2023-1668	Amends official zoning map (Special)
BL2023-1669	Amends official zoning map (Special)
Amdt. 1	Adds a new § 3 and renumbers subsequent sections of Ord. BL2023-1669 (Special)
BL2023-1670	Amends official zoning map (Special)
BL2023-1671	Authorizes building material restrictions and requirements (Special)
BL2023-1672	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2023-1673	Amends official zoning map (Special)
BL2023-1674	Authorizes building material restrictions and requirements (Special)
BL2023-1675	Amends official zoning map (Special)
BL2023-1676	Amends official zoning map (Special)
BL2023-1677	Amends official zoning map (Special)
BL2023-1678	Amends official zoning map (Special)
BL2023-1679	Amends official zoning map (Special)
BL2023-1680	Amends official zoning map (Special)
BL2023-1681	Authorizes building material restrictions and requirements (Special)
BL2023-1682	Amends official zoning map (Special)
BL2023-1683	Approves an amendment to a lease agreement between the metropolitan government and Meharry Medical College (Special)
BL2023-1684	Authorizes expansion of the Centennial dog park (Special)
Amdt. 1	Amends the third recital, § 2 and replaces the recommendation letter of Ord. BL2023-1684 (Special)
BL2023-1685	Amends §§ 1.01.010—1.01.050 (1.01)
BL2023-1686	Grants permanent and temporary construction easements to Piedmont Natural Gas Co. (Special)
BL2023-1687	Accepts new public sanitary sewer manhole (Special)
BL2023-1688	Amends §§ 8.04.010—8.04.210, 8.08.010; repeals § 8.08.020 (8.04, 8.08)
Amdts. 1, 2	Amends § 1 of Ord. BL2023-1688 (8.04)
BL2023-1689	Adds § 13.32.166 (13.32)
BL2023-1690	Adds § 15.64.035 (15.64)
Amdt. 1	Adds language between the fifth and sixth recitals and amends § 1 of Ord. BL2023-1690 (15.64)
Amdt. 2	Amends § 1 of Ord. BL2023-1690 (15.64)
BL2023-1691	Amends § 17.12.030 (17.12)
Amdt. 1	Amends § 1 of Ord. BL2023-1691 (17.12)
BL2023-1692	Amends the geographic information systems street and alley centerline layer (Special)
BL2023-1693	Provides the honorary street name designation of "One Vanderbilt Way" for the entirety of Kirkland Circle (Special)
BL2023-1694	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Nashville Police Department, and Airbus Helicopters, Inc. (Special)
BL2023-1695	Grants temporary construction easements to Piedmont Natural Gas Company, Inc. (Special)
BL2023-1696	Approves a contract between the Metropolitan Government of Nashville and Davidson County and PSI Water Technologies, Inc. (Special)
BL2023-1697	Abandons existing public utility easement (Special)
BL2023-1698	Accepts new public sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2023-1699	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1700	Accepts new water and sanitary sewer main, fire hydrant assembly and sanitary sewer manhole (Special)
BL2023-1701	Abandons public fire hydrant assembly (Special)
BL2023-1702	Abandons existing public water main and easements, and accepts new public water main (Special)
BL2023-1703	Abandons existing water mains, fire hydrant assemblies and easements, and accepts new public water mains, fire hydrant assemblies, sanitary sewer manhole and easements (Special)
BL2023-1704	Accepts the relocation of existing public water main (Special)
BL2023-1705	Accepts new public water main and fire hydrant assembly (Special)
BL2023-1706	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1707	Accepts new public sanitary sewer main and sanitary sewer manhole (Special)
BL2023-1708	Amends official zoning map (Special)
BL2023-1709	Amends official zoning map (Special)
BL2023-1710	Authorizes building material restrictions and requirements (Special)
BL2023-1711	Amends official zoning map (Special)
BL2023-1712	Amends official zoning map (Special)
BL2023-1713	Authorizes building material restrictions and requirements (Special)
BL2023-1714	Amends official zoning map (Special)
BL2023-1715	Amends official zoning map (Special)
Amdt. 1	Amends § 1 of Ord. BL2023-1715 (Special)
BL2023-1716	(Deferred indefinitely)
BL2023-1717	Amends official zoning map (Special)
BL2023-1718	Amends official zoning map (Special)
BL2023-1719	Amends official zoning map (Special)
BL2023-1720	Amends official zoning map (Special)
BL2023-1721	Amends official zoning map (Special)
BL2023-1722	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2023-1723	Authorizes building material restrictions and requirements (Special)
BL2023-1724	Amends official zoning map (Special)
BL2023-1725	Amends official zoning map (Special)
BL2023-1726	Authorizes building material restrictions and requirements (Special)
BL2023-1727	Amends official zoning map (Special)
BL2023-1728	Amends official zoning map (Special)
BL2023-1729	(Withdrawn)
BL2023-1730	(Withdrawn)
BL2023-1731	Amends § 2.149.040 (2.149)
BL2023-1732	Authorizes Reservoir Zone 3, LLC to install, construct and maintain underground encroachments in the right-of-way located 1310 Hillside Ave. (Special)
BL2023-1733	Authorizes the acquisition of certain right-of-way easements and property rights by negotiation or condemnation (Special)
BL2023-1734	Approves a contract between the Metropolitan Government of Nashville and Davidson County and Principle Environmental, Inc. (Special)
BL2023-1735	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1736	Accepts the replacement of existing public water main and new public sanitary sewer manhole (Special)
BL2023-1737	Accepts new public sanitary sewer manhole (Special)
BL2023-1738	Abandons existing sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2023-1739	Accepts the replacement of an existing public water main and the rehabilitation of an existing sanitary sewer manhole (Special)
BL2023-1740	(Withdrawn)
BL2023-1741	Approves an intergovernmental project agreement with the sports authority of the metropolitan government (Special)
Amdts. A—H	Amends Ord. BL2023-1741 (Special)
BL2023-1742	Creates a public dashboard to address the issue of housing affordability (Special)
Amdt. 1	Amends § 1 of Ord. BL2023-1742 (Special)
BL2023-1743	Designates public property within specified areas of downtown Nashville as a temporary "Special Event Zone" (Special)
BL2023-1744	Approves easement (Special)
BL2023-1745	Authorizes acceptance of donated property (Special)
BL2023-1746	Abandons and accepts water mains (Special)
BL2023-1747	Accepts water mains, sewer mains, fire hydrant assembly, sanitary sewer manholes and easements (Special)
BL2023-1748	Abandons existing public utility easement (Special)
BL2023-1749	Accepts new public sanitary sewer force main and easement (Special)
BL2023-1750	Accepts new public sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2023-1751	Accepts new public sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2023-1752	Abandons existing public combination and sanitary sewer mains and sanitary sewer manholes, and to accept new public sanitary sewer main and sanitary sewer manholes (Special)
BL2023-1753	Accepts new public water main (Special)
BL2023-1754	Accepts new public water and sanitary sewer mains, fire hydrant assembly, sanitary sewer manholes and easements (Special)
BL2023-1755	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1756	Abandons existing public sanitary sewer mains, sanitary sewer manholes and easements, and accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1757	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1758	Amends official zoning map (Special)
BL2023-1759	Authorizes building material restrictions and requirements (Special)
BL2023-1760	Amends official zoning map (Special)
BL2023-1761	Amends official zoning map (Special)
BL2023-1762	Amends official zoning map (Special)
BL2023-1763	Authorizes building material restrictions and requirements (Special)
BL2023-1764	Amends official zoning map (Special)
BL2023-1765	Authorizes building material restrictions and requirements (Special)
BL2023-1766	Amends official zoning map (Special)
BL2023-1767	Authorizes building material restrictions and requirements (Special)
BL2023-1768	Amends official zoning map (Special)
BL2023-1769	Authorizes building material restrictions and requirements (Special)
BL2023-1770	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2023-1771	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2023-1771 (Special)
BL2023-1772	Authorizes building material restrictions and requirements (Special)
BL2023-1773	Amends official zoning map (Special)
BL2023-1774	Amends official zoning map (Special)
BL2023-1775	Amends official zoning map (Special)
BL2023-1776	Amends official zoning map (Special)
BL2023-1777	(Failed)
BL2023-1778	Amends official zoning map (Special)
BL2023-1779	Authorizes building material restrictions and requirements (Special)
BL2023-1780	Amends official zoning map (Special)
BL2023-1781	Amends official zoning map (Special)
BL2023-1782	(Pending)
BL2023-1783	Corrects the staggering terms of the Metropolitan Human Relations Commission (Special)
BL2023-1784	Approves a participation agreement and temporary construction easement (Special)
BL2023-1785	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)
BL2023-1786	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1787	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1788	Abandons existing sanitary sewer main, sanitary sewer manhole and easements (Special)
BL2023-1789	Abandons existing sanitary sewer mains, sanitary sewer manholes, and easements, and accepts new sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2023-1790	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1791	Abandons existing public sanitary sewer main, sanitary sewer manholes, fire hydrant assembly and easement, and accepts new public sanitary sewer main, sanitary sewer manholes and fire hydrant assembly (Special)
BL2023-1792	Accepts new public water main and fire hydrant assembly (Special)
BL2023-1793	Approves a lease agreement (Special)
BL2023-1794	Approves a contract between the Metropolitan Government of Nashville and Davidson County and Xylem Vue, Inc. (Special)
BL2023-1795	Acquires property through negotiation, condemnation, or fee simple take (Special)
BL2023-1796	Acquires a portion of two properties through negotiations, condemnation or fee simple take (Special)
BL2023-1797	Abandons existing water and sanitary sewer mains, sanitary sewer manhole and easements, and accepts new water and sanitary sewer mains, fire hydrant assembly, sanitary sewer manholes and easements (Special)
BL2023-1798	Accepts new public fire hydrant assembly (Special)
BL2023-1799	Accepts a new public water main (Special)
BL2023-1800	Accepts the relocation of fire hydrant assemblies (Special)
BL2023-1801	Abandons existing public sanitary sewer mains and easements, and accepts new sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2023-1802	Accepts new sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2023-1803	Abandons existing public water mains, relocates an existing public fire hydrant assembly, and accepts new public water main (Special)
BL2023-1804	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1805	Abandons existing water mains, fire hydrant assemblies and easements, and accepts new public water mains, fire hydrant assemblies, replacement of fire hydrant assemblies and easements (Special)
BL2023-1806	Abandons existing public combination sewer main, combination sewer manhole and easement, and accepts the replacement of a combination sewer manhole with new public stormwater inlet (Special)
BL2023-1807	Amends official zoning map (Special)
BL2023-1808	Amends official zoning map (Special)
BL2023-1809	Amends official zoning map (Special)
BL2023-1810	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3, 4 of Ord. BL2023-1810 (Special)
BL2023-1811	Amends official zoning map (Special)
BL2023-1812	Authorizes building material restrictions and requirements (Special)
BL2023-1813	Amends official zoning map (Special)
BL2023-1814	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2023-1815	Amends official zoning map (Special)
BL2023-1816	Authorizes building material restrictions and requirements (Special)
BL2023-1817	Amends official zoning map (Special)
BL2023-1818	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2023-1818 (Special)
BL2023-1819	Amends official zoning map (Special)
BL2023-1820	(Withdrawn)
BL2023-1821	(Withdrawn)
BL2023-1822	Amends official zoning map (Special)
BL2023-1823	Amends official zoning map (Special)
BL2023-1824	Authorizes building material restrictions and requirements (Special)
BL2023-1825	Amends official zoning map (Special)
BL2023-1826	Authorizes building material restrictions and requirements (Special)
BL2023-1827	Amends official zoning map (Special)
BL2023-1828	Authorizes building material restrictions and requirements (Special)
BL2023-1829	Amends official zoning map (Special)
Amdt. A	Amends § 4; adds a new § 8 and renumbers subsequent sections of Ord. BL2023-1829 (Special)
Amdt. B	Amends § 4 of Ord. BL2023-1829 (Special)
Amdt. C	Amends § 4 of Ord. BL2023-1829 (Special)
BL2023-1830	Authorizes building material restrictions and requirements (Special)
BL2023-1831	Amends official zoning map (Special)
BL2023-1832	Authorizes building material restrictions and requirements (Special)
BL2023-1833	Amends official zoning map (Special)
BL2023-1834	Amends official zoning map (Special)
BL2023-1835	Amends official zoning map (Special)
BL2023-1836	Amends official zoning map (Special)
Amdt. 1	Substitutes the SP plans of Ord. BL2023-1836 (Special)
Amdt. 2	Amends § 4 of Ord. BL2023-1836 (Special)
BL2023-1837	Authorizes building material restrictions and requirements (Special)
BL2023-1838	Amends official zoning map (Special)
BL2023-1839	Adds § 16.33.170 (16.33)
BL2023-1840	Approves a lease agreement (Special)
BL2023-1841	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)
BL2023-1842	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)
BL2023-1843	Provides honorary street name designation (Special)
BL2023-1844	Abandons existing public water main, and accepts new public water main (Special)
BL2023-1845	Accepts a new sanitary sewer main in addition to sanitary sewer manholes and easements (Special)
BL2023-1846	Abandons existing sanitary sewer mains and easements, and accepts new water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1847	Abandons existing water main and easements (Special)
BL2023-1848	Accepts the relocation of an existing public fire hydrant assembly and a new public sanitary sewer manhole (Special)
BL2023-1849	Accepts new public sanitary sewer mains, sanitary sewer force mains, sanitary sewer manholes and easements (Special)
BL2023-1850	Accepts public sanitary sewer main and sanitary sewer manhole, and to rehabilitate existing public sanitary sewer manholes (Special)
BL2023-1851	Abandons existing public sanitary sewer main, and accepts new public sanitary sewer main and sanitary sewer manhole (Special)
BL2023-1852	Accepts new public water and sanitary sewer mains, fire hydrant assembly, sanitary sewer manholes and easements (Special)
BL2023-1853	Accepts the relocation of a public fire hydrant assembly (Special)
BL2023-1854	Accepts the relocation of a public fire hydrant assembly (Special)
BL2023-1855	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1856	Constructs public sanitary sewer mains and sanitary sewer manholes, and acquires permanent and temporary easements through negotiations and acceptance (Special)
BL2023-1857	(Failed)
BL2023-1858	Amends §§ 17.32.020, 17.40.510 (17.32, 17.40)
BL2023-1859	Approves a lease agreement (Special)
BL2023-1860	Approves a lease agreement (Special)
BL2023-1861	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Department of Parks and Recreation ("Parks"), and Tennessee Football, Inc. (Special)
Amdt. 1	Amends § 1 of Ord. BL2023-1861 (Special)
BL2023-1862	Amends §§ 1.01.010—1.01.050 (1.01)

Ordinance Number	Disposition
BL2023-1863	Accepts new public sanitary sewer mains, sanitary sewer manholes, and easements (Special)
BL2023-1864	Accepts new public sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2023-1865	Accepts new public sanitary sewer main and sanitary sewer manholes (Special)
BL2023-1866	Amends official zoning map (Special)
BL2023-1867	Budget ordinance for fiscal year 2024 (Special)
Amdts. A—E	Amends Ord. BL2023-1867 (Special)
BL2023-1868	Establishes tax levy in the General Services District for fiscal year 2023—2024 (Special)
BL2023-1869	Amends §§ 6.77.030, 6.77.060, 6.77.090 (6.77)
BL2023-1870	Amends § 7.16.030 (7.16)
BL2023-1871	Amends §§ 15.32.210, 15.44.070 (15.32, 15.44)
BL2023-1872	Adopts revised debt management policy (Special)
BL2023-1873	Creates the positions of Accounts Payable Specialist 1, Accounts Payable Specialist 2, Accounts Payable Specialist 3, Attorney 1, Attorney 2, Attorney 3, Attorney 4, Behavioral Health Services Coordinator, Collections Specialist 1, Collections Specialist 2, Collections Specialist 3, Collections Specialist 4, Crime Lab DNA Technical Lead, Crime Lab Forensic Scientist 4, Data Compliance Technician, Extension Deputy Director, Homeless Services Director, Industrial Maintenance Manager, Payroll Analyst 1, Payroll Analyst 2, Payroll Specialist 1, Payroll Specialist 2, Skilled Craft Leader, and Transportation Administrator (Special)
BL2023-1874	Approves a lease agreement (Special)
BL2023-1875	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Nashville Police Department, and LEAD Cameron (Special)
BL2023-1876	Authorizes acquisition of certain easements and property rights (Special)
BL2023-1877	Abandons existing public sanitary sewer easement rights (Special)
BL2023-1878	Accepts new public water main and fire hydrant assembly (Special)
BL2023-1879	Amends official zoning map (Special)
BL2023-1880	Adopts capital improvements budget and program 2023—2024 through 2028—2029 (Special)
BL2023-1881	Authorizes the installation, construction, and maintenance of encroachments (Special)
BL2023-1882	Adds Ch. 2.153, §§ 2.153.010—2.153.050 (2.153)
Amdt. 1	Amends § 1 of Ord. BL2023-1882 (2.153)
BL2023-1883	(Withdrawn)
BL2023-1884	Amends § 6.28.030 (6.28)
Amdt. 1	Amends § 1 of Ord. BL2023-1884 (6.28)
BL2023-1885	Amends § 10.60.050 (10.60)
BL2023-1886	Adds § 11.22.035 (11.22)
BL2023-1887	Amends § 12.20.020 (12.20)
BL2023-1888	Amends §§ 15.64.015, 15.64.032, 15.64.040, 15.64.050, 15.64.060, 15.64.070, 15.64.080, 15.64.090, 15.64.100, 15.64.105, 15.64.170, 15.64.215, 17.28.040, 17.36.220 (15.64, 17.28, 17.36)
BL2023-1889	Approves a lease agreement (Special)
BL2023-1890	Adopts the Five Year Consolidated Plan and 2023 Action Plan for Housing and Community Development and authorizing the metropolitan mayor to submit the Consolidated Plan and 2023 Action Plan to the U.S. Department of Housing and Urban Development (Special)
BL2023-1891	(Withdrawn)
BL2023-1892	Designates public property within specified areas of downtown Nashville as a temporary "Special Event Zone" (Special)
BL2023-1893	Approves an agreement (Special)
BL2023-1894	Accepts donation of real property (Special)
BL2023-1895	Grants a permanent utility easement to Piedmont Natural Gas Co. on certain property (Special)
BL2023-1896	Authorizes the acquisition of certain rights-of-way, easements, and property rights, by negotiation or condemnation (Special)
BL2023-1897	Amends the geographic information systems street and alley centerline layer (Special)
BL2023-1898	Accepts new public sanitary sewer main, sanitary sewer manholes, fire hydrant assemblies and easements (Special)
BL2023-1899	Accepts the relocation and replacement of public water main (Special)
BL2023-1900	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1901	Abandons existing public storm sewer pipeline and easement (Special)
BL2023-1902	Accepts new public sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2023-1903	Accepts the relocation of an existing public fire hydrant assembly (Special)

Ordinance Number	Disposition
BL2023-1904	Accepts a new public sanitary sewer manhole and easement (Special)
BL2023-1905	Accepts new public sanitary sewer main and sanitary sewer manholes (Special)
BL2023-1906	Accepts public new sanitary sewer force main and rehabilitation of existing sanitary sewer manholes (Special)
BL2023-1907	Accepts new public water and sanitary sewer mains and sanitary sewer manholes (Special)
BL2023-1908	Abandons existing public sanitary sewer mains and sanitary sewer manholes, and accepts new public sanitary sewer mains and sanitary sewer manholes (Special)
BL2023-1909	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-1910	Accepts new public sanitary sewer main and adjustment of sanitary sewer manholes (Special)
BL2023-1911	Amends official zoning map (Special)
BL2023-1912	Amends official zoning map (Special)
BL2023-1913	Authorizes building material restrictions and requirements (Special)
BL2023-1914	Amends official zoning map (Special)
BL2023-1915	Amends official zoning map (Special)
BL2023-1916	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3, 4 of Ord. BL2023-1916 (Special)
BL2023-1917	Authorizes building material restrictions and requirements (Special)
BL2023-1918	Amends official zoning map (Special)
BL2023-1919	Amends official zoning map (Special)
Amdt. 1	Amends §§ 3, 4 of Ord. BL2023-1919 (Special)
BL2023-1920	Amends official zoning map (Special)
BL2023-1921	Amends official zoning map (Special)
BL2023-1922	Authorizes building material restrictions and requirements (Special)
BL2023-1923	Amends official zoning map (Special)
BL2023-1924	Amends official zoning map (Special)
BL2023-1925	Amends official zoning map (Special)
BL2023-1926	Authorizes building material restrictions and requirements (Special)
BL2023-1927	Amends official zoning map (Special)
BL2023-1928	Amends official zoning map (Special)
BL2023-1929	Amends official zoning map (Special)
BL2023-1930	Amends official zoning map (Special)
BL2023-1931	Amends official zoning map (Special)
BL2023-1932	Authorizes building material restrictions and requirements (Special)
BL2023-1933	Amends official zoning map (Special)
BL2023-1934	Authorizes building material restrictions and requirements (Special)
BL2023-1935	Amends official zoning map (Special)
BL2023-1936	Authorizes building material restrictions and requirements (Special)
BL2023-1937	Amends official zoning map (Special)
BL2023-1938	Amends official zoning map (Special)
BL2023-1939	Amends official zoning map (Special)
Amdt. 1	Amends Ord. BL2023-1939 (Special)
BL2023-1940	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2023-1940 (Special)
BL2023-1941	Authorizes building material restrictions and requirements (Special)
BL2023-1942	Amends official zoning map (Special)
BL2023-1943	Amends official zoning map (Special)
BL2023-1944	Authorizes building material restrictions and requirements (Special)
BL2023-1945	Amends official zoning map (Special)
BL2023-1946	Amends official zoning map (Special)
BL2023-1947	Amends official zoning map (Special)
BL2023-1948	Amends official zoning map (Special)
BL2023-1949	Amends official zoning map (Special)
BL2023-1950	Authorizes building material restrictions and requirements (Special)
BL2023-1951	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2023-1951 (Special)
BL2023-1952	Authorizes building material restrictions and requirements (Special)
BL2023-1953	Amends official zoning map (Special)
BL2023-1954	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2023-1954 (Special)
BL2023-1955	Amends official zoning map (Special)
BL2023-1956	Amends official zoning map (Special)
BL2023-1957	Authorizes building material restrictions and requirements (Special)
BL2023-1958	Amends official zoning map (Special)
BL2023-1959	Amends official zoning map (Special)
BL2023-1960	Authorizes building material restrictions and requirements (Special)
BL2023-1961	Amends official zoning map (Special)
BL2023-1962	Amends official zoning map (Special)
BL2023-1963	Amends official zoning map (Special)
BL2023-1964	Amends official zoning map (Special)
BL2023-1965	Amends official zoning map (Special)
BL2023-1966	Amends official zoning map (Special)
Amdt. 1	Adds recital and amends § 4 of Ord. BL2023-1966 (Special)
BL2023-1967	Authorizes building material restrictions and requirements (Special)
BL2023-1968	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2023-1968 (Special)
Amdt. 2	Amends § 4 of Ord. BL2023-1968 (Special)
BL2023-1969	Authorizes building material restrictions and requirements (Special)

Ordinance Number	Disposition
BL2023-1970	Amends official zoning map (Special)
BL2023-1971	Amends official zoning map (Special)
BL2023-1972	Authorizes building material restrictions and requirements (Special)
BL2023-1973	(Failed)
BL2023-1974	Amends official zoning map (Special)
BL2023-1975	Authorizes building material restrictions and requirements (Special)
BL2023-1976	Amends official zoning map (Special)
BL2023-1977	Authorizes building material restrictions and requirements (Special)
BL2023-1978	Amends official zoning map (Special)
BL2023-1979	Authorizes building material restrictions and requirements (Special)
BL2023-1980	Amends official zoning map (Special)
BL2023-1981	Amends official zoning map (Special)
BL2023-1982	Amends official zoning map (Special)
BL2023-1983	Amends official zoning map (Special)
BL2023-1984	Amends official zoning map (Special)
BL2023-1985	Amends official zoning map (Special)
BL2023-1986	Amends official zoning map (Special)
BL2023-1987	Amends official zoning map (Special)
BL2023-1988	Amends official zoning map (Special)
BL2023-1989	Authorizes building material restrictions and requirements (Special)
BL2023-1990	Repeals Ch. 2.106, § 2.106.010; adds Ch. 2.106, §§ 2.106.010—2.106.090 (2.106)
Amdt. 1	Amends § 1 of Ord. BL2023-1990 (2.106)
Amdt. 2	Amends § 2 of Ord. BL2023-1990 (Special)
BL2023-1991	Adds § 2.128.070 (2.128)
BL2023-1992	(Withdrawn)
BL2023-1993	(Withdrawn)
BL2023-1994	Amends § 16.08.012 (16.08)
Amdt. 1	Amends § 1 of Ord. BL2023-1994 (16.08)
BL2023-1995	(Withdrawn)
BL2023-1996	Approves a contract between the Metropolitan Government of Nashville and Davidson County and Mythics, LLC (Special)
BL2023-1997	Authorizes the acquisition of certain rights-of-way, easements, and property rights, by negotiation or condemnation (Special)
BL2023-1998	Accepts new public sanitary sewer main and sanitary sewer manhole (Special)
BL2023-1999	Accepts the relocation of an existing public fire hydrant assembly (Special)
BL2023-2000	Accepts a new public sanitary sewer manhole (Special)
BL2023-2001	Accepts a new public water main and fire hydrant assembly (Special)
BL2023-2002	Accepts a new sanitary sewer manhole and easement (Special)
BL2023-2003	Abandons existing sanitary sewer main, sanitary sewer manhole and easements, and accepts new public sanitary sewer main, sanitary sewer manhole and easements (Special)
BL2023-2004	Adds Ch. 2.155 and §§ 2.155.010—2.155.040 (2.155)
BL2023-2005	(Withdrawn)
BL2023-2006	Amends § 6.80.540 (6.80)
BL2023-2007	Amends § 7.08.090 (7.08)
BL2023-2008	Amends § 7.16.030 (7.16)
BL2023-2009	Amends §§ 16.08.014, 16.08.016 (16.08)
BL2023-2010	Amends § 17.20.140 (17.20)
BL2023-2011	Approves a lease agreement between the Metropolitan Government of Nashville and Davidson County and Donelson Corporate Centre, L.P. (Special)
BL2023-2012	Approves three agreements relating to the acquisition of a parcel of property and improvements located at 607 Bass Street (Special)
BL2023-2013	Accept a donation of real property (Special)
BL2023-2014	Accepts a donation of real property (Special)
BL2023-2015	Accepts a donation of real property (Special)
BL2023-2016	Approves the first amendment to an agreement between the Metropolitan Government of Nashville and Davidson County and Nashville Steam Preservation Society for the lease and restoration of Steam Locomotive Number 576 (Special)
BL2023-2017	Approves an agreement between the Metropolitan Government and Tennessee Golf Foundation (Special)
BL2023-2018	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)
Amdt. 1	Amends exhibit of Ord. BL2023-2018 (Special)
BL2023-2019	Authorizes the installation, construction, and maintenance of underground encroachments (Special)
BL2023-2020	Authorizes the installation, construction, and maintenance of encroachments (Special)
BL2023-2021	Approves the plans for a solid waste processing facility (Special)
BL2023-2022	Negotiates and accepts permanent and temporary easements (Special)
BL2023-2023	Abandons a portion of existing public stormwater drainage easement rights (Special)
BL2023-2024	Accepts new public sanitary sewer manhole (Special)

Ordinance Number	Disposition
BL2023-2025	Accepts new public sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2023-2026	Accepts new public water main (Special)
BL2023-2027	Accepts new public sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2023-2028	Accepts new public water and sanitary sewer mains, fire hydrant assemblies, sanitary sewer manholes and easements (Special)
BL2023-2029	Abandons existing public water main, sanitary sewer main and sanitary sewer manhole, and accepts new public water main, sanitary sewer main and sanitary sewer manhole (Special)
BL2023-2030	Abandons existing public water main, and accepts new public water main and the replacement of existing fire hydrant assemblies (Special)
BL2023-2031	Abandons existing public water and sanitary sewer mains, sanitary sewer manholes and easements, and accepts new water and sanitary sewer mains, fire hydrant assembly, sanitary sewer manholes and easements (Special)
BL2023-2032	Abandons existing public water and sanitary sewer mains, sanitary sewer manholes and easements, and accepts new public sanitary sewer main, sanitary sewer manhole and easements (Special)
BL2023-2033	Accepts new public sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2023-2034	Amends official zoning map (Special)
BL2023-2035	Amends official zoning map (Special)
BL2023-2036	Amends official zoning map (Special)
BL2023-2037	Amends official zoning map (Special)
BL2023-2038	Amends official zoning map (Special)
BL2023-2039	Authorizes building material restrictions and requirements (Special)
BL2023-2040	(Withdrawn)
BL2023-2041	(Withdrawn)
BL2023-2042	(Withdrawn)
BL2023-2043	(Withdrawn)
BL2023-2044	Amends official zoning map (Special)
BL2023-2045	Amends official zoning map (Special)
BL2023-2046	Authorizes building material restrictions and requirements (Special)
BL2023-2047	Amends official zoning map (Special)
BL2023-2048	Authorizes building material restrictions and requirements (Special)
BL2023-2049	(Withdrawn)
BL2023-2050	(Withdrawn)
BL2023-2051	Amends official zoning map (Special)
BL2023-2052	Amends official zoning map (Special)
BL2023-2053	Amends official zoning map (Special)
BL2023-2054	Authorizes building material restrictions and requirements (Special)
BL2023-2055	Amends official zoning map (Special)
BL2023-2056	Amends official zoning map (Special)
Amdt. 1	Adds recital and a new § 3 and renumbers subsequent sections of Ord. BL2023-2056 (Special)
BL2023-2057	Amends official zoning map (Special)
BL2023-2058	Amends official zoning map (Special)
BL2023-2059	Authorizes building material restrictions and requirements (Special)
BL2023-2060	Amends official zoning map (Special)
BL2023-2061	Amends official zoning map (Special)
BL2023-2062	Amends official zoning map (Special)
BL2023-2063	Authorizes building material restrictions and requirements (Special)
BL2023-2064	Amends official zoning map (Special)
BL2023-2065	Amends official zoning map (Special)
BL2023-2066	Authorizes building material restrictions and requirements (Special)
BL2023-2067	Amends official zoning map (Special)
BL2023-2068	(Withdrawn)
BL2023-2069	(Withdrawn)
BL2023-2070	Amends official zoning map (Special)
BL2023-2071	Amends official zoning map (Special)
BL2023-2072	Amends official zoning map (Special)
Amdt. 1	Adds recital and a new § 3 and renumbers subsequent sections of Ord. BL2023-2072 (Special)
BL2023-2073	(Withdrawn)
BL2023-2074	Amends official zoning map (Special)
BL2023-2075	Amends official zoning map (Special)
Amdt. 1	Adds recital and a new § 3 and renumbers subsequent sections of Ord. BL2023-2075 (Special)
BL2023-2076	Amends official zoning map (Special)
Amdt. 1	Adds recital and a new § 3 and renumbers subsequent sections of Ord. BL2023-2076 (Special)
BL2023-2077	Amends official zoning map (Special)
BL2023-2078	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2023-2078 (Special)
BL2023-2079	Authorizes building material restrictions and requirements (Special)
BL2023-2080	(Withdrawn)
BL2023-2081	(Withdrawn)
BL2023-2082	(Withdrawn)
BL2023-2083	Amends official zoning map (Special)
BL2023-2084	Authorizes building material restrictions and requirements (Special)
BL2023-2085	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2023-2086	Authorizes building material restrictions and requirements (Special)
BL2023-2087	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2023-2087 (Special)
BL2023-2088	Authorizes building material restrictions and requirements (Special)
BL2023-2089	Amends official zoning map (Special)
Amdt. 1	Substitutes the SP plans of Ord. BL2023-2089 (Special)
BL2023-2090	Authorizes building material restrictions and requirements (Special)
BL2023-2091	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2023-2091 (Special)
BL2023-2092	(Withdrawn)
BL2023-2093	Amends official zoning map (Special)
BL2023-2094	Authorizes building material restrictions and requirements (Special)
BL2023-2095	Amends official zoning map (Special)
Amdt. 1	Amends § 4 of Ord. BL2023-2095 (Special)
BL2023-2096	Authorizes building material restrictions and requirements (Special)
BL2023-2097	Amends official zoning map (Special)
BL2023-2098	Authorizes building material restrictions and requirements (Special)
BL2023-2099	Amends official zoning map (Special)
BL2023-2100	Amends official zoning map (Special)
BL2023-2101	Authorizes building material restrictions and requirements (Special)
BL2023-2102	(Withdrawn)
BL2023-2103	Amends official zoning map (Special)
Amdt. 1	Adds recital and a new § 3 and renumbers subsequent sections of Ord. BL2023-2103 (Special)
BL2023-2104	Amends official zoning map (Special)
BL2023-2105	Amends official zoning map (Special)
BL2023-2106	Amends §§ 9.20.010, 9.20.060 (9.20)
BL2023-2107	Establishes a program for the purpose of providing assistance to low-income elderly residents for the fiscal year 2023-2024 (Special)
BL2023-2108	Approves a lease between the Metropolitan Nashville Public Schools and Hispanic Family Foundation (Special)
BL2023-2109	(Withdrawn)
BL2023-2110	Approves a limited revocable license agreement between the Metropolitan Government, acting by and through the Metropolitan Board of Health, and Cosecha Community Development (Special)
BL2023-2111	Grants a temporary overhead line easement and a permanent underground utility easement (Special)
BL2023-2112	Approves a greenway conservation easement and a participation agreement (Special)
BL2023-2113	(Withdrawn)
BL2023-2114	Amends the geographic information systems street and alley centerline layer (Special)
BL2023-2115	Approves the conditional abandonment of the public right-of-way of Jess Neely Drive between Natchez Trace and 25th Avenue South (Special)
BL2023-2116	Authorizes the abandonment of an easement and the acquisition of another easement (Special)
BL2023-2117	Approves a contract between the Metropolitan Government of Nashville and Davidson County and Nedrow and Associates, Inc. (Special)
BL2023-2118	Abandons easement rights (Special)
BL2023-2119	Accepts a new public water main, horizontal relocation of a public water main, and a doghouse sanitary sewer manhole (Special)
BL2023-2120	Accepts new public sanitary sewer mains, sanitary sewer manholes and easements (Special)
BL2023-2121	Accepts new public sanitary sewer main, sanitary sewer manholes and easements (Special)
BL2023-2122	Abandons an existing sanitary sewer force main and easements, and accepts a new public sanitary sewer force main and easements (Special)
BL2023-2123	Abandons an existing public water main, and accepts a new public water main and fire hydrant assemblies (Special)
BL2023-2124	Amends Ordinance No. BL2013-395, and approves an extension of one year to the initial term of the cable television franchise of Comcast of Nashville I, LLC (Special)
BL2023-2125	Amends §§ 10.16.030, 10.16.040, 10.16.050, 10.40.150, 10.44.140, 10.72.010 (10.16, 10.40, 10.44, 10.72)
BL2023-1	Approves a contract (Special)
Amdt. 1	Adds a new § 2 and renumbers subsequent sections of Ord. BL2023-1 (Special)
BL2023-2	Approves an agreement (Special)
BL2023-3	Amends §§ 1.01.010—1.01.050 (1.01)
BL2023-4	Approves a participation agreement (Special)
BL2023-5	Amends the geographic information systems street and alley centerline layer (Special)
BL2023-6	Amends the geographic information systems street and alley centerline layer (Special)
BL2023-7	Amends the geographic information systems street and alley centerline layer (Special)
BL2023-8	Amends the geographic information systems street and alley centerline layer (Special)

Ordinance Number	Disposition
BL2023-9	Amends the geographic information systems street and alley centerline layer (Special)
BL2023-10	Authorizes the installation, construction, and maintenance of aerial and underground encroachments (Special)
BL2023-11	Authorizes the installation, construction, and maintenance of aerial, underground and above-ground encroachments (Special)
BL2023-12	Approves a contract (Special)
BL2023-13	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2023-14	Abandons easement rights (Special)
BL2023-15	MWS Project No. 22-SL-19 (Special)
BL2023-16	MWS Project No. 22-SL-287 (Special)
BL2023-17	MWS Project Nos. 22-WL-112 and 22-SL-237 (Special)
BL2023-18	MWS Project Nos. 22-WL-113 and 22-SL-238 (Special)
BL2023-19	MWS Project No. 21-SL-35 (Special)
BL2023-20	MWS Project No. 21-SL-45 (Special)
BL2023-21	MWS Project Nos. 22-WL-144 and 23-SL-112 (Special)
BL2023-22	MWS Project No. 23-WL-44 (Special)
BL2023-23	MWS Project Nos. 22-WL-78 and 22-SL-168 (Special)
BL2023-24	MWS Project Nos. 21-WL-109 and 21-SL-264 (Special)
BL2023-25	MWS Project No. 22-WL-121 (Special)
BL2023-26	MWS Project Nos. 23-WL-45 and 23-SL-106 (Special)
BL2023-27	MWS Project No. 21-SL-267 (Special)
BL2023-28	MWS Project Nos. 21-WL-35 and 21-SL-82 (Special)
BL2023-29	MWS Project No. 23-SL-14 (Special)
BL2023-30	MWS Project No. 23-SL-19 (Special)
BL2023-31	MWS Project Nos. 22-SL-262 and 22-WL-125 (Special)
BL2023-32	MWS Project Nos. 22-WL-34 and 22-SL-75 (Special)
BL2023-33	MWS Project Nos. 23-WL-56 and 22-SL-279 (Special)
BL2023-34	MWS Project Nos. 21-WL-103 and 21-SL-240 (Special)
BL2023-35	MWS Project Nos. 22-WL-124 and 22-SL-261 (Special)
BL2023-36	MWS Project Nos. 22-WL-79 and 22-SL-169 (Special)
BL2023-37	MWS Project No. 23-WL-51 (Special)
BL2023-38	MWS Project No. 22-SL-263 (Special)
BL2023-39	MWS Project No. 23-SL-06 (Special)
BL2023-40	MWS Project Nos. 23-SL-23 and 23-WL-12 (Special)
BL2023-41	MWS Project No. 22-SL-278 (Special)
BL2023-42	MWS Project No. 23-SL-124 (Special)
BL2023-43	MWS Project No. 22-SL-115 (Special)
BL2023-44	MWS Project No. 22-SL-137 (Special)
BL2023-45	MWS Project No. 23-SL-143 (Special)
BL2023-46	MWS Project Nos. 23 WL-10 and 23-SL-20 (Special)
BL2023-47	MWS Project Nos. 22-WL-130 and 22-SL-268 (Special)
BL2023-48	MWS Project Nos. 22-WL-139 and 22-SL-288 (Special)
BL2023-49	MWS Project No. 23-SL-45 (Special)
BL2023-50	MWS Project No. 23-SL-70 (Special)
BL2023-51	MWS Project Nos. 23-WL-59 and 23-SL-136 (Special)
BL2023-52	MWS Project No. 23-WL-61 (Special)
BL2023-53	MWS Project No. 23-SL-105 (Special)
BL2023-54	Amends official zoning map (Special)
BL2023-55	Amends official zoning map (Special)
BL2023-56	Amends official zoning map (Special)
BL2023-57	Authorizes building material restrictions and requirements (Special)
BL2023-58	Amends official zoning map (Special)
BL2023-59	Amends official zoning map (Special)
BL2023-60	Amends official zoning map (Special)
BL2023-61	Amends official zoning map (Special)
BL2023-62	Amends official zoning map (Special)
BL2023-63	Authorizes building material restrictions and requirements (Special)
BL2023-64	Amends official zoning map (Special)
BL2023-65	Amends official zoning map (Special)
BL2023-66	Amends official zoning map (Special)
BL2023-67	Amends official zoning map (Special)
BL2023-68	Amends official zoning map (Special)
BL2023-69	Approves a license agreement (Special)
BL2023-70	Amends § 13.08.040 (13.08)
Amdt. 1	Amends § 1 of Ord. BL2023-70 (13.08)
BL2023-71	Amends § 13.08.080 (13.08)
BL2023-72	Amends § 16.60.110 (16.60)
BL2023-73	Designates public property within specified areas of downtown Nashville as a temporary "Special Event Zone" (Special)
BL2023-74	(Withdrawn)
BL2023-75	Renames the Kelly Miller Smith Memorial Bridge on Jefferson Street as the "Rev. Kelly Miller Smith, Sr. Memorial Bridge" (Special)
BL2023-76	Encroachments (Proposal No. 2023M-010EN-001) (Special)
BL2023-77	Amends the geographic information systems street and alley centerline layer (Special)
BL2023-78	Amends § 15.60.175 (15.60)
BL2023-79	Amends § 17.12.040 (17.12)
BL2023-80	Approves a license agreement (Special)
BL2023-81	Approves a sole source contract (Special)

Ordinance Number	Disposition
BL2023-82	Encroachments (Proposal No. 2023M-012EN-001) (Special)
BL2023-83	Approves an agreement (Special)
BL2023-84	MWS Project No. 22-SL-296 (Special)
BL2023-85	MWS Project Nos. 23-WL-21 and 23-SL-43 (Special)
BL2023-86	MWS Project No. 23-SL-77 (Special)
BL2023-87	MWS Project Nos. 22-WL-97 and 22-SL-215 (Special)
BL2023-88	MWS Project No. 23-SL-126 (Special)
BL2023-89	MWS Project No. 22-SL-285 (Special)
BL2023-90	MWS Project Nos. 23-WL-48 and 23-SL-108 (Special)
BL2023-91	Amends official zoning map (Special)
BL2023-92	Authorizes building material restrictions and requirements (Special)
BL2023-93	Amends official zoning map (Special)
BL2023-94	Authorizes building material restrictions and requirements (Special)
BL2023-95	Amends official zoning map (Special)
BL2023-96	Authorizes building material restrictions and requirements (Special)
BL2023-97	Amends official zoning map (Special)
BL2023-98	Authorizes building material restrictions and requirements (Special)
BL2023-99	Amends official zoning map (Special)
BL2023-100	Authorizes building material restrictions and requirements (Special)
BL2023-101	Amends official zoning map (Special)
BL2023-102	Authorizes building material restrictions and requirements (Special)
BL2023-103	Amends official zoning map (Special)
BL2023-104	Authorizes building material restrictions and requirements (Special)
BL2023-105	Amends official zoning map (Special)
BL2023-106	Authorizes building material restrictions and requirements (Special)
BL2023-107	Amends official zoning map (Special)
BL2023-108	Authorizes building material restrictions and requirements (Special)
BL2023-109	Amends official zoning map (Special)
BL2023-110	(Withdrawn)
BL2023-111	Authorizes acquisition of certain real property (Special)
BL2023-112	Accepts the conditional donation of approximately 0.026 acres of land (Special)
BL2023-113	(Failed)
BL2023-114	Authorizes the installation and construction underground encroachments (Special)
BL2023-115	MWS Project No. 23-WL-77 (Special)
BL2023-116	Amends official zoning map (Special)
BL2023-117	Amends official zoning map (Special)
BL2023-118	Amends official zoning map (Special)
BL2023-119	Amends § 7.08.010 (7.08)
BL2023-120	Amends §§ 17.04.060, 17.12.080, 17.40.340, 17.40.380 (17.04, 17.12, 17.40)
Amdt. 1	Amends § 2 of Ord. BL2023-120 (17.12)
BL2023-121	Increases the amounts of the official bonds for the Public Administrator and Public Trustee (Special)
BL2023-122	MWS Project No. 23-WL-149 (Special)
BL2023-123	MWS Project Nos. 23-WL-11 and 23-SL-21 (Special)
BL2023-124	Abandons existing brick water pumping station building located at 2124 Oakwood Avenue but retains the Public Utility & Drainage Easement (Special)
BL2023-125	MWS Project No. 23-WL-71 (Special)
BL2023-126	MWS Project Nos. 23-WL-34 and 23-SL-74 (Special)
BL2023-127	MWS Project Nos. 23-WL-17 and 23-SL-30 (Special)
BL2023-128	(Withdrawn)
BL2023-129	Amends official zoning map (Special)
BL2023-130	Amends official zoning map (Special)
BL2023-131	Amends official zoning map (Special)
BL2023-132	Amends official zoning map (Special)
BL2023-133	Amends official zoning map (Special)
BL2023-134	Amends official zoning map (Special)
BL2023-135	Amends official zoning map (Special)
BL2023-136	Amends § 6.28.035 (6.28)
Amdt. 1	Amends § 1 of Ord. BL2023-136 (6.28)
BL2023-137	Adds Ch. 13.21, §§ 13.21.010, 13.21.020 (13.21)
Amdt. 1	Amends § 1 of Ord. BL2023-137 (13.21)
BL2023-138	Amends § 17.40.010 (17.40)
BL2023-139	Approves a contract (Special)
BL2023-140	Approves a lease agreement (Special)
BL2023-141	Approves the conditional abandonment of a portion of Lock Road right-of-way (Special)
BL2023-142	Approves a participation agreement (Special)
BL2023-143	Establishes a Central East Bank Redevelopment Area (Special)
BL2023-144	Abandons easement rights (Special)
BL2023-145	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2023-146	MWS Project Nos. 22-WL-141 and 22-SL-292 (Special)
BL2023-147	MWS Project No. 23-SL-200 (Special)
BL2023-148	MWS Project Nos. 22-WL-140 and 22-SL-289 (Special)
BL2023-149	MWS Project No. 23-SL-206 (Special)
BL2023-150	MWS Project No. 23-SL-75 (Special)
BL2023-151	MWS Project No. 22-SL-139 (Special)
BL2024-152	Amends § 2.222.040 (2.222)

Ordinance Number	Disposition
BL2024-153	Amends § 15.64.035 (15.64)
BL2024-154	Amends § 17.36.120 (17.36)
BL2024-155	Authorizes the granting of an easement (Special)
BL2024-156	Approves an agreement (Special)
BL2024-157	Amends Ordinance No. BL2019-11 (Special)
BL2024-158	Approves a lease agreement (Special)
BL2024-159	Adopts the geographic information systems street and alley centerline layer (Special)
BL2024-160	Amends the geographic information systems street and alley centerline layer (Special)
BL2024-161	Authorizes the construction and installation of aerial and underground encroachments (Special)
BL2024-162	Authorizes acquisition of permanent easements through negotiation, condemnation and acceptance (Special)
BL2024-163	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2024-164	Authorizes the metropolitan government to negotiate and accept permanent easements (Special)
BL2024-165	MWS Project No. No. 23-SL-27 (Special)
BL2024-166	MWS Project Nos. 23-WL-18 and 23-SL-32 (Special)
BL2024-167	MWS Project No. 22-WL-145 (Special)
BL2024-168	MWS Project Nos. 22-WL-136 and 22-SL-138 (Special)
BL2024-169	MWS Project No. 23-WL-36 (Special)
BL2024-170	MWS Project No. 22-SL-203 (Special)
BL2024-171	MWS Project Nos. 22-WL-26 and 22-SL-64 (Special)
BL2024-172	MWS Project No. 23-SL-137 (Special)
BL2024-173	MWS Project No. 20-SL-320 (Special)
BL2024-174	MWS Project No. 23-SL-215 (Special)
BL2024-175	MWS Project No. 23-SL-88 (Special)
BL2024-176	MWS Project No. 23-SL-217 (Special)
BL2024-177	MWS Project Nos. 23-WL-70 and 23-SL-161 (Special)
BL2024-178	MWS Project No. 23-SL-109 (Special)
BL2024-179	Amends § 2.44.115 (2.44)
Amdt. 1	Amends § 2 of Ord. BL2024-179 (2.44)
BL2024-180	Amends § 9.30.010 (9.30)
BL2024-181	(Withdrawn)
BL2024-182	Amends §§ 16.04.070, 16.08.012, 16.08.014 (16.04, 16.08)
BL2024-183	(Withdrawn)
BL2024-184	Amends §§ 17.04.060, 17.08.030, 17.16.030, 17.36.470, 17.36.710 (17.04, 17.08, 17.16, 17.36)
Amdt. 1	Amends §§ 1, 2, 4 of Ord. BL2024-184 (17.04, 17.08)
BL2024-185	(Withdrawn)
BL2024-186	(Withdrawn)
BL2024-187	Amends § 17.16.030 (17.16)
Amdt. A	Amends § 1 of Ord. BL2024-187 (17.16)
Amdt. B	Amends § 1 of Ord. BL2024-187 (17.16)
BL2024-188	(Deferred indefinitely)
BL2024-189	Approves a lease agreement (Special)
BL2024-190	Grants easement (Special)
BL2024-191	Grants a franchise to Uniti Fiber LLC (Special)
BL2024-192	Authorizes license agreement (Special)
BL2024-193	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2024-194	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2024-195	MWS Project No. 23-WL-53 (Special)
BL2024-196	MWS Project No. 23-WL-33 (Special)
BL2024-197	MWS Project Nos. 22-WL-138 and 22-SL-286 (Special)
BL2024-198	MWS Project No. 23-SL-107 (Special)
BL2024-199	MWS Project No. 23-SL-166 (Special)
BL2024-200	MWS Project No. 23-SL-47 (Special)
BL2024-201	MWS Project Nos. 22-WL-88 and 22-SL-177 (Special)
BL2024-202	MWS Project Nos. 23-WL-73 and 23-SL-163 (Special)
BL2024-203	MWS Project No. 23-SL-127 (Special)
BL2024-204	MWS Project Nos. 23-WL-81 and 23-SL-211 (Special)
BL2024-205	MWS Project Nos. 23-WL-05 and 23-SL-10 (Special)
BL2024-206	MWS Project No. 22-SL-277 (Special)
BL2024-207	MWS Project No. 23-SL-273 (Special)
BL2024-208	MWS Project No. 23-WL-144 (Special)
BL2024-209	MWS Project No. 23-SL-73 (Special)
BL2024-210	MWS Project No. 23-SL-202 (Special)
BL2024-211	Amends official zoning map (Special)
BL2024-212	Amends official zoning map (Special)
BL2024-213	Amends official zoning map (Special)
BL2024-214	Amends official zoning map (Special)
BL2024-215	Authorizes building material restrictions and requirements (Special)
BL2024-216	Amends official zoning map (Special)
BL2024-217	Amends official zoning map (Special)
BL2024-218	Authorizes building material restrictions and requirements (Special)
BL2024-219	Amends official zoning map (Special)
BL2024-220	Amends official zoning map (Special)
BL2024-221	Amends official zoning map (Special)
BL2024-222	Authorizes building material restrictions and requirements (Special)
BL2024-223	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2024-224	Authorizes building material restrictions and requirements (Special)
BL2024-225	Amends official zoning map (Special)
BL2024-226	Amends official zoning map (Special)
BL2024-227	Amends official zoning map (Special)
BL2024-228	Amends official zoning map (Special)
BL2024-229	Amends official zoning map (Special)
BL2024-230	Amends § 12.72.020 (12.72)
Amdt. 1	Amends § 1 of Ord. BL2024-230 (12.72)
BL2024-231	Approves an agreement (Special)
BL2024-232	Approves a greenway conservation easement (Special)
BL2024-233	Approves a greenway conservation easement (Special)
BL2024-234	Authorizes the metropolitan government to negotiate and accept permanent and temporary easements (Special)
BL2024-235	Abandons existing public utility and stormwater drainage easement rights (Special)
BL2024-236	Abandons existing public utility and drainage easement rights (Special)
BL2024-237	MWS Project No. 23-SG-0144 (Special)
BL2024-238	Abandons easement rights (Special)
BL2024-239	MWS Project No. 23-WL-97 (Special)
BL2024-240	MWS Project No. 23-WL-87 (Special)
BL2024-241	MWS Project Nos. 23-WL-152 and 23-SL-234 (Special)
BL2024-242	MWS Project Nos. 23-WL-06 and 23-SL-11 (Special)
BL2024-243	MWS Project No. 23-SL-135 (Special)
BL2024-244	MWS Project No. 23-SL-87 (Special)
BL2024-245	MWS Project No. 23-SL-218 (Special)
BL2024-246	MWS Project Nos. 23-WL-99 and 23-SL-31 (Special)
BL2024-247	MWS Project No. 22-SL-179 (Special)
BL2024-248	MWS Project No. 23-SL-210 (Special)
BL2024-249	MWS Project No. 23-SL-260 (Special)
BL2024-250	MWS Project No. 20-SL-150 (Special)
BL2024-251	MWS Project Nos. 23-WL-50 and 23-SL-111 (Special)
BL2024-252	MWS Project No. 23-SL-267 (Special)
BL2024-253	(Withdrawn)
BL2024-254	(Withdrawn)
BL2024-255	(Withdrawn)
BL2024-256	Approves Amendment Number 1 to Contract number 450614 (Special)
BL2024-257	Approves Amendment Number 1 to Contract number 450613 (Special)
BL2024-258	Declares surplus certain real property (Special)
BL2024-259	Terminates the declaration of restrictive covenants for Bowen House and 2830 Donelson (Special)
BL2024-260	Designates public property within specified areas of downtown Nashville as a temporary "Special Event Zone" (Special)
BL2024-261	Amends §§ 1.01.010—1.01.050 (1.01)
BL2024-262	MWS Project No. 23-SL-224 (Special)
BL2024-263	MWS Project No. 23-WL-78 (Special)
BL2024-264	MWS Project No. 19-SL-256 (Special)
BL2024-265	MWS Project Nos. 23-WL-54 and 23-SL-119 (Special)
BL2024-266	MWS Project Nos. 20-WL-102 and 20-SL-208 (Special)
BL2024-267	MWS Project No. 24-SL-06 (Special)
BL2024-268	MWS Project No. 23-WL-150 (Special)
BL2024-269	MWS Project No. 23-WL-46 (Special)
BL2024-270	Amends official zoning map (Special)
BL2024-271	(Deferred indefinitely)
BL2024-272	(Deferred indefinitely)
BL2024-273	Amends official zoning map (Special)
BL2024-274	Authorizes building material restrictions and requirements (Special)
BL2024-275	Amends official zoning map (Special)
BL2024-276	(Withdrawn)
BL2024-277	(Withdrawn)
BL2024-278	Amends official zoning map (Special)
BL2024-279	Amends official zoning map (Special)
BL2024-280	Amends official zoning map (Special)
BL2024-281	Amends official zoning map (Special)
BL2024-282	Authorizes building material restrictions and requirements (Special)
BL2024-283	Amends official zoning map (Special)
BL2024-284	Amends official zoning map (Special)
BL2024-285	Amends official zoning map (Special)
BL2024-286	Authorizes building material restrictions and requirements (Special)
BL2024-287	Amends official zoning map (Special)
BL2024-288	Amends official zoning map (Special)
BL2024-289	Amends official zoning map (Special)
BL2024-290	Amends §§ 2.196.040, 2.196.050, 2.196.060, 2.196.110, 2.196.120 (2.196)
Amdt. 1	Amends §§ 2, 4, 5, 9 of Ord. BL2024-290 (2.196)
BL2024-291	Amends § 12.41.080 (12.41)
BL2024-292	Amends § 13.08.050 (13.08)
BL2024-293	(Withdrawn)
BL2024-294	Amends § 15.64.170 (15.64)
BL2024-295	Approves Amendment Number 1 to the contract between the Metropolitan Government of Nashville and Davidson County and AT&T Corp. (Special)
BL2024-296	Authorizes PR II/SH Peabody Union Apartments Owner, LLC to construct and install an underground encroachment (Special)
BL2024-297	Amends the geographic information systems street and alley centerline layer (Special)

Ordinance Number	Disposition
BL2024-298	MWS Project Nos. 23-WL-02 and 23-SL-03 (Special)
BL2024-299	MWS Project No. 23-SL-130 (Special)
BL2024-300	MWS Project Nos. 22-WL-35 and 2-SL-77 (Special)
BL2024-301	Amends § 2.78.010 (2.78)
BL2024-302	Amends § 2.112.030 (2.112)
BL2024-303	(Withdrawn)
BL2024-304	Amends § 16.08.012 (16.08)
BL2024-305	Authorizes the Metropolitan Government of Nashville and Davidson County, by and through the Department of Parks and Recreation, to deaccession the Pre-Columbian collection from the Parthenon (Special)
BL2024-306	Designates a certain portion of 2nd Avenue North as a Tourism Improvement Zone (Special)
BL2024-307	Amends the geographic information systems street and alley centerline layer (Special)
BL2024-308	Approves Amendment 1 to the contract between the Metropolitan Government of Nashville and Davidson County and Southern Sales Co, a Division of Tencarva Machinery (Special)
BL2024-309	Authorizes the director of Metro Water Services, or his designee, to execute a settlement agreement and release of liability (Special)
BL2024-310	Abandons existing public utility easement rights (Special)
BL2024-311	MWS Project No. 23-WL-271 (Special)
BL2024-312	MWS Project No. 23-SL-231 (Special)
BL2024-313	MWS Project No. 23-WL-42 (Special)
BL2024-314	MWS Project Nos. 19-WL-31 and 19-SL-61 (Special)
BL2024-315	MWS Project No. 23- WL-155 (Special)
BL2024-316	Amends official zoning map (Special)
BL2024-317	Amends official zoning map (Special)
BL2024-318	Authorizes building material restrictions and requirements (Special)
BL2024-319	Amends official zoning map (Special)
BL2024-320	Amends official zoning map (Special)
BL2024-321	Authorizes building material restrictions and requirements (Special)
BL2024-322	Amends official zoning map (Special)
BL2024-323	Authorizes building material restrictions and requirements (Special)
BL2024-324	Amends official zoning map (Special)
BL2024-325	Amends official zoning map (Special)
BL2024-326	Authorizes building material restrictions and requirements (Special)
BL2024-327	Amends official zoning map (Special)
BL2024-328	Authorizes building material restrictions and requirements (Special)
BL2024-329	Amends official zoning map (Special)
BL2024-330	Amends official zoning map (Special)
BL2024-331	Amends official zoning map (Special)
BL2024-332	Amends official zoning map (Special)
BL2024-333	Amends official zoning map (Special)
BL2024-334	Adds Ch. 2.107, § 2.107.010 (2.107)
BL2024-335	Amends §§ 17.40.740, 17.40.770 (17.40)
BL2024-336	Approves a services agreement (Special)
BL2024-337	Approves an option agreement (Special)
BL2024-338	Grants of a permanent utility line easement (Special)
BL2024-339	Authorizes State Street Owner, LP to construct, install, and maintain above ground and underground encroachments (Special)
BL2024-340	MWS Project Nos. 23-WL-60 and 22-SL-220 (Special)
BL2024-341	MWS Project No. 23-SL-259 (Special)
BL2024-342	MWS Project No. 23-WL-94 (Special)
BL2024-343	(Withdrawn)
BL2024-344	Amends § 2.147.030 (2.147)
Amdt. A	Amends § 1 of Ord. BL2024-344 (2.147)
Amdt. B	Amends §§ 1 and 2 of Ord. BL2024-344 (2.147)
BL2024-345	Adds § 15.52.050 (15.52)
BL2024-346	Repeals § 16.04.240; amends § 17.12.030 (16.04, 17.12)
BL2024-347	Designates public property within specified areas of downtown Nashville as a temporary "Special Event Zone" (Special)
BL2024-348	Approves Amendment No. 9 to the Rutledge Hill Redevelopment Plan pertaining to certain uses (Special)
BL2024-349	Amends the geographic information systems street and alley centerline layer (Special)
BL2024-350	Authorizes the abandonment of Alley #896 right-of-way and utility easements between Reidhurst Avenue and 24th Avenue North, and the conditional abandonment of Alley #924 right-of-way and partial utility easements between Brandau Place and Alley #896 (Special)
BL2024-351	Authorizes the abandonment of a portion of Alley #1519 right-of-way, from Midland Avenue then west to the dead end (Special)
BL2024-352	Authorizes Jemal's Honky Tonk LLC to construct, install, and maintain aerial, underground, and aboveground encroachments at 522, 524, and 532 4th Avenue South (Special)
BL2024-353	Authorizes Tennessee State University to construct and install an aerial and above ground encroachment at 3100 John A. Merritt Boulevard (Special)

Ordinance Number	Disposition
BL2024-354	Approves a term extension of Contract 408246 between the Metropolitan Government of Nashville and Davidson County and Reynolds Construction, LLC (Special)
BL2024-355	Grants the Purchasing Agent the authority to extend the term of contract number 459172 between the Metropolitan Government of Nashville and Davidson County, through the Department of Water and Sewerage Services, and CDM Smith (Special)
BL2024-356	Adopts the revised Flood Insurance Rate Map (Special)
BL2024-357	Acquires permanent and temporary easements through negotiations, condemnation, and acceptance (Special)
BL2024-358	MWS Project Nos. 21-WL-110 and 21-SL-265 (Special)
BL2024-359	MWS Project Nos. 24-WL-09 and 24-SL-21 (Special)
BL2024-360	MWS Project No. 24-SL-12 (Special)
BL2024-361	MWS Project No. 23-SL-56 (Special)
BL2024-362	MWS Project No. 23-SL-178 (Special)
BL2024-363	MWS Project No. 24-SL-27 (Special)
BL2024-364	MWS Project No. 23-SL-284 (Special)
BL2024-365	MWS Project No. 23- WL-84 (Special)
BL2024-366	MWS Project No. 24- WL-15 (Special)
BL2024-367	MWS Project No. 21-SL-60 (Special)
BL2024-368	MWS Project Nos. 24-WL-07 and 24-SL-42 (Special)
BL2024-369	MWS Project No. 22-SL-172 (Special)
BL2024-370	MWS Project Nos. 22-WL-147 and 22-SL-298 (Special)
BL2024-371	(Pending)
BL2024-372	Amends official zoning map (Special)
BL2024-373	Budget ordinance for fiscal year 2025 (Special)
BL2024-374	Establishes tax levy in the General Services District for fiscal year 2024—2025 (Special)
BL2024-375	Adds § 4.20.130 (4.20)
BL2024-376	Creates the positions of 311 Call Center Manager, 311 Call Center Supervisor, Criminal Intelligence Analyst 1, Criminal Intelligence Analyst 2, Criminal Intelligence Unit Manager, Criminal Intelligence Unit Supervisor, Family Safety Advocate, Family Safety Advocate Senior, Helicopter Mechanic, Helicopter Maintenance Supervisor, Industrial Control Systems Specialist, Logistics Supervisor, Office of Family Safety Assistant Director, Police Assistant Chief, Risk and Compliance Manager, Service and Security Officer 1, Service and Security Officer 2, Waste Services Assistant Director, Waste Services Director, Youth Case Manager 1, Youth Case Manager 2, Youth Case Manager 3, and Zoning Examiner 2 (Special)
BL2024-377	Approves lease agreement (Special)
BL2024-378	Grants the Purchasing Agent the authority to extend the term of contract number 458569 for the Fire Emergency Medical Services Billing and Collection contract (Special)
BL2024-379	Approves an agreement between Bethel University ("Bethel") and the Metropolitan Government of Nashville and Davidson County, by and through the Metropolitan Nashville Police Department ("MNPD") (Special)
BL2024-380	Approves an agreement between the Nashville Police Activities League ("Nashville P.A.L."), and the Metropolitan Government of Nashville and Davidson County, by and through the Metropolitan Nashville Police Department ("MNPD") (Special)
BL2024-381	Creates an East Bank Stormwater District (Special)
BL2024-382	MWS Project No. 24-SL-32 (Special)
BL2024-383	MWS Project Nos. 23-WL-101 and 23-SL-269 (Special)
BL2024-384	MWS Project Nos. 23-WL-102 and 23-SL-270 (Special)
BL2024-385	MWS Project Nos. 23-WL-22 and 23-SL-44 (Special)
BL2024-386	MWS Project No. 23-SL-281 (Special)
BL2024-387	Abandons existing public stormwater drainage and detention easement rights for the specific area of property located at 2244 Hobson Pike, also known as Resurrected Church (Special)
BL2024-388	MWS Project No. 24-SL-11 (Special)

Ordinance Number	Disposition
BL2024-389	Adopts capital improvements budget and program 2024—2025 through 2029—2030 (Special)
BL2024-390	Amends § 2.63.020 (2.63)
Amdt. 1	Amends § 1 of Ord. BL2024-390 (2.63)
BL2024-391	Adds § 13.08.100 (13.08)
BL2024-392	Amends Ord. BL2016-334 (Special)
BL2024-393	Approves a lease agreement (Special)
BL2024-394	(Withdrawn)
BL2024-395	Abandons a portion of an existing utility easement for property located at 201 Shelby Avenue (Special)
BL2024-396	Provides the honorary street name designation of "J.B. Barker and Estille Burgess Memorial Way" for the entirety of Donelson Station Boulevard (Special)
BL2024-397	Abandons easement rights located at 710 Demonbreun Street, formerly a portion of Alley No. 114 (Special)
BL2024-398	Abandons existing public utility and drainage easement rights, for the specific area of property located at 3348 Lakeside Place (Special)
BL2024-399	MWS Project Nos. 22-WL-137 and 23-SL-265 (Special)
BL2024-400	Amends official zoning map (Special)
BL2024-401	Authorizes building material restrictions and requirements (Special)
BL2024-402	Amends official zoning map (Special)
BL2024-403	Amends official zoning map (Special)
BL2024-404	Amends official zoning map (Special)
BL2024-405	(Withdrawn)
BL2024-406	Amends official zoning map (Special)
BL2024-407	Amends official zoning map (Special)
BL2024-408	Amends official zoning map (Special)
BL2024-409	Authorizes building material restrictions and requirements (Special)
BL2024-410	Amends official zoning map (Special)
BL2024-411	Amends official zoning map (Special)
BL2024-412	Amends official zoning map (Special)
BL2024-413	Amends official zoning map (Special)
BL2024-414	Amends official zoning map (Special)
BL2024-415	Amends official zoning map (Special)
BL2024-416	Amends official zoning map (Special)
BL2024-417	Amends official zoning map (Special)
BL2024-418	Amends official zoning map (Special)
BL2024-419	Authorizes building material restrictions and requirements (Special)
BL2024-420	Amends official zoning map (Special)
BL2024-421	Authorizes building material restrictions and requirements (Special)
BL2024-422	Amends official zoning map (Special)
BL2024-423	Amends official zoning map (Special)
BL2024-424	Amends official zoning map (Special)
BL2024-425	Authorizes building material restrictions and requirements (Special)
BL2024-426	Amends § 15.64.140 (15.64)
Amdt. 1	Amends § 1 of Ord. BL2024-426 (15.64)
Amdt. 2	Amends § 1 of Ord. BL2024-426 (15.64)
BL2024-427	Adopts a transit improvement program for the Metropolitan Government of Nashville and Davidson County, approving a surcharge for the program, and requesting the Davidson County Election Commission to call a county-wide referendum election to be held on November 5, 2024, regarding the levying of the surcharge on certain taxes to fund the program (Special)
BL2024-428	Approves, ratifies, and adopts Chapter 68 of the Private Acts of 2024, authorizing the establishment of an East Bank Development Authority (Special)
BL2024-429	Approves a contract between the Metropolitan Government of Nashville and Davidson County and Concentra Health Services Inc. (Special)
BL2024-430	Authorizes the naming of Unnumbered Alley right-of-way, from Benton Avenue to Craighead Street, as "Coliseum Way" (Special)
BL2024-431	Authorizes the abandonment of Alley #149 right-of-way and utility easements between President Ronald Reagan Way and 3rd Avenue and Peabody Street and Lea Avenue (Special)
BL2024-432	Authorizes the abandonment of Alley #1827 right-of-way between Montrose Avenue and West Kirkwood Avenue (Special)
BL2024-433	MWS Project No. 24-SL-46 (Special)
BL2024-434	MWS Project No. 23-WL-80 (Special)
BL2024-435	MWS Project No. 22-WL-63 (Special)
BL2024-436	MWS Project No. 22-WL-64 (Special)
BL2024-437	MWS Project No. 24-SL-66 (Special)
BL2024-438	MWS Project No. 24-SL-67 (Special)
BL2024-439	MWS Project Nos. 22-WL-46 and 22-SL-107 (Special)
BL2024-440	MWS Project Nos. 23-WL-58 and 23-SL-133 (Special)
BL2024-441	(Failed)
BL2024-442	Approves Amendment Number 1 to the contract between the Metropolitan Government of Nashville and Davidson County and Comcast Business Communications, LLC (Special)
BL2024-443	Approves a greenway conservation easement (Special)
BL2024-444	Approves a greenway conservation easement (Special)

Ordinance Number	Disposition
BL2024-445	Approves a contract between the Metropolitan Government of Nashville and Davidson County and Tycowa LLC (Special)
BL2024-446	Abandons easement rights, for property located at 210 South 10th Street, formerly a portion of Alley No. 286 (Special)
BL2024-447	MWS Project No. 23-SL-028 (Special)
BL2024-448	Amends official zoning map (Special)
BL2024-449	Authorizes building material restrictions and requirements (Special)
BL2024-450	Amends official zoning map (Special)
BL2024-451	Amends official zoning map (Special)
BL2024-452	Amends § 17.08.030, 17.37.010 (17.08, 17.37)
BL2024-453	Amends official zoning map (Special)
BL2024-454	Amends official zoning map (Special)
BL2024-455	Authorizes building material restrictions and requirements (Special)
BL2024-456	Amends official zoning map (Special)
BL2024-457	Amends official zoning map (Special)
BL2024-458	Amends official zoning map (Special)
BL2024-459	Authorizes building material restrictions and requirements (Special)
BL2024-460	Amends official zoning map (Special)
BL2024-461	Amends official zoning map (Special)
BL2024-462	Amends official zoning map (Special)
BL2024-463	Amends official zoning map (Special)
BL2024-464	Amends official zoning map (Special)
BL2024-465	Amends official zoning map (Special)
BL2024-466	Approves three option agreements authorizing the purchase of properties for a new elementary school in Antioch, Tennessee (Special)
BL2024-467	Amends § 17.04.060 (17.04)
BL2024-468	Amends §§ 2.24.240, 2.24.250 (2.24)
BL2024-469	(Withdrawn)
BL2024-470	Amends § 6.64.040 (6.64)
BL2024-471	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Metropolitan Nashville Public Defender, and Lipscomb University (Special)
BL2024-472	Abandons existing public utility easement rights, for the specific area of property located at 2121 Crestmoor Road (Special)
BL2024-473	MWS Project Nos. 22-WL-146 and 22-SL-297 (Special)
BL2024-474	MWS Project No. 23-SL-141 (Special)
BL2024-475	MWS Project Nos. 23-WL-095 and 23-SL-264 (Special)
BL2024-476	Amends §§ 2.112.020, 2.112.040 (2.112)
Amdt. 1	Amends § 2 of Ord. BL2024-476 (2.112)
BL2024-477	Amends § 2.222.040 (2.222)
Amdt. 1	Amends § 1 of Ord. BL2024-477 (2.222)
BL2024-478	Amends §§ 6.28.010, 6.28.030 (6.28)
Amdt. 1	Adds § 2, renumbers subsequent sections, and amends newly renumbered §§ 3, 4 of Ord. BL2024-478 (6.28)
Amdt. 2	Amends §§ 6 and 9 of Ord. BL2024-478 (6.28)
Amdt. 3	Amends § 3 of Ord. BL2024-478 (6.28)
BL2024-479	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Department of Parks and Recreation, and RCX Sports, LLC (Special)
BL2024-480	Encroachment at 909 Division Street (Proposal No. 2024M-019EN-001) (Special)
BL2024-481	MWS Project No. 24-WL-14 and Proposal No. 2024M-083ES-001 (Special)
BL2024-482	MWS Project No. 23-SL-287 and Proposal No. 2024M-085ES-001 (Special)
BL2024-483	Amends official zoning map (Special)
BL2024-484	Amends official zoning map (Special)
BL2024-485	Authorizes building material restrictions and requirements (Special)
BL2024-486	Amends official zoning map (Special)
BL2024-487	Authorizes building material restrictions and requirements (Special)
BL2024-488	Amends official zoning map (Special)
BL2024-489	Amends official zoning map (Special)
BL2024-490	Amends official zoning map (Special)
BL2024-491	Amends official zoning map (Special)
BL2024-492	Amends official zoning map (Special)
BL2024-493	Amends official zoning map (Special)
BL2024-494	Amends official zoning map (Special)
BL2024-495	Amends § 16.16.260 (16.16)
BL2024-496	(Pending)
BL2024-497	(Pending)
BL2024-498	Provides the honorary street name designation of "James 'Jake' Sherrell Way" for a portion of 17th Avenue North (Special)
BL2024-499	Encroachments (Proposal No. 2024M-012EN-001) (Special)
BL2024-500	Authorizes the abandonment of Alley #187 right-of-way and utility easements between Alley #1801 and Martin Street, and Brown Street right-of-way and utility easements between Humphreys Street and Alley #187 (Special)
BL2024-501	Authorizes the conditional abandonment of a portion of Alley #442 right-of-way, and utility easements, between 17th Avenue South and 18th Avenue South, and between Edgehill Avenue to DeFord Bailey Avenue (Special)

Ordinance Number	Disposition
BL2024-502	Acquires permanent and temporary easements through negotiation, condemnation, and acceptance (Special)
BL2024-503	Acquires permanent and temporary easements through negotiation, condemnation and acceptance (Special)
BL2024-504	(Withdrawn)
BL2024-505	Abandons a portion of existing public utility easement rights (Special)
BL2024-506	MWS Project No. 24-SL-92 and Proposal No. 2024M-086ES-001 (Special)
BL2024-507	MWS Project No. 24-SL-51 and Proposal No. 2024M-088ES-001 (Special)
BL2024-508	MWS Project Nos. 22-WL-107 and 24-SL-030 and Proposal No. 2024M-097ES-001 (Special)
BL2024-509	Amends §§ 6.64.020, 6.64.035, 6.64.180, 10.24.010; adds §§ 10.24.180, 10.24.190 (6.64, 10.24)
BL2024-510	Amends § 11.12.040 (11.12)
BL2024-511	Adds §§ 11.12.100—11.12.130 (11.12)
BL2024-512	Amends § 12.12.170 (12.12)
BL2024-513	Amends §§ 12.48.030, 12.48.050 (12.48)
BL2024-514	Amends § 13.08.040 (13.08)
BL2024-515	(Withdrawn)
BL2024-516	Approves the Second Amendment to a lease agreement between the Metropolitan Government of Nashville and Davidson County and Nashville Metropolitan LLC (Special)
BL2024-517	Approves Amendment Number 2 to the contract between the Metropolitan Government of Nashville and Davidson County and InfoSapient, Inc. (Special)
BL2024-518	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Nashville Fire Department, Emergency Medical Services Division, and Vanderbilt University Medical Center (Special)
BL2024-519	Approves an amended and restated agreement for a grant of a greenway conservation easement between the Metropolitan Government of Nashville and Davidson County, through the Metropolitan Board of Parks and Recreation, and Byline Property Owner, LLC (Special)
BL2024-520	Abandons a portion of existing public utility easement rights, for property located at 1520 Dugger Drive (Special)
BL2024-521	Acquires permanent and temporary easements through negotiation, condemnation, and acceptance (Special)
BL2024-522	MWS Project Nos. 21-WL-70 and 21-SL-158 and Proposal No. 2024M-098ES-001 (Special)
BL2024-523	MWS Project No. 24-SL-133 and Proposal No. 2024M-103ES-001 (Special)
BL2024-524	MWS Project No. 24-SL-93 and Proposal No. 2024M-100ES-001 (Special)
BL2024-525	MWS Project No. 24-SL-49 and Proposal No. 2024M-104ES-001 (Special)
BL2024-526	Amends official zoning map (Special)
BL2024-527	Amends official zoning map (Special)
BL2024-528	Amends official zoning map (Special)
BL2024-529	Amends official zoning map (Special)
BL2024-530	Amends official zoning map (Special)
BL2024-531	Amends official zoning map (Special)
BL2024-532	Authorizes building material restrictions and requirements (Special)
BL2024-533	Amends official zoning map (Special)
BL2024-534	Amends official zoning map (Special)
BL2024-535	Amends official zoning map (Special)
BL2024-536	Amends official zoning map (Special)
BL2024-537	Authorizes building material restrictions and requirements (Special)
BL2024-538	Amends official zoning map (Special)
BL2024-539	Amends official zoning map (Special)
BL2024-540	Amends official zoning map (Special)
BL2024-541	Amends official zoning map (Special)
BL2024-542	Amends official zoning map (Special)
BL2024-543	Amends official zoning map (Special)
BL2024-544	Authorizes building material restrictions and requirements (Special)
BL2024-545	(Deferred indefinitely)
BL2024-546	Amends official zoning map (Special)
BL2024-547	Amends official zoning map (Special)
BL2024-548	Amends official zoning map (Special)
BL2024-549	Authorizes building material restrictions and requirements (Special)
BL2024-550	Amends official zoning map (Special)
BL2024-551	Amends §§ 1.01.010—1.01.050 (1.01)
BL2024-552	Adds § 8.30.040 (8.30)
BL2024-553	(Deferred indefinitely)
BL2024-554	Designates public property within specified areas of downtown Nashville as a temporary "Special Event Zone" (Special)
BL2024-555	Authorizes the abandonment of Edenwold Road Connector and other remnant rights-of-way (Special)
BL2024-556	MWS Project Nos. 23-WL-154 and 23-SL-257 and Proposal No. 2024M-107ES-001 (Special)
BL2024-557	MWS Project Nos. 23-WL-104 and 23-SL-279 and Proposal No. 2024M-110ES-001 (Special)

Ordinance Number	Disposition
BL2024-558	MWS Project Nos. 23-WL-103 and 23-SL-274 and Proposal No. 2024M-113ES-001 (Special)
BL2024-559	Amends official zoning map (Special)
BL2024-560	Amends official zoning map (Special)
BL2024-561	Authorizes building material restrictions and requirements (Special)
BL2024-562	Amends official zoning map (Special)
BL2024-563	Amends official zoning map (Special)
BL2024-564	Amends official zoning map (Special)
BL2024-565	Amends official zoning map (Special)
BL2024-566	Authorizes building material restrictions and requirements (Special)
BL2024-567	Amends official zoning map (Special)
BL2024-568	Authorizes building material restrictions and requirements (Special)
BL2024-569	Amends official zoning map (Special)
BL2024-570	Amends official zoning map (Special)
BL2024-571	Amends official zoning map (Special)
BL2024-572	Amends official zoning map (Special)
BL2024-573	Authorizes building material restrictions and requirements (Special)
BL2024-574	Amends official zoning map (Special)
BL2024-575	Authorizes building material restrictions and requirements (Special)
BL2024-576	Amends official zoning map (Special)
BL2024-577	Authorizes building material restrictions and requirements (Special)
BL2024-578	Amends official zoning map (Special)
BL2024-579	Amends official zoning map (Special)
BL2024-580	Amends official zoning map (Special)
BL2024-581	Authorizes the abandonment of Alley #196 right-of-way between 8th Avenue South and 7th Avenue South (Special)
BL2024-582	Adds § 2.64.070; renumbers §§ 2.153.010—2.153.040 as §§ 2.155.010—2.155.040; amends §§ 2.96.020, 2.144.020, 2.149.020, 2.154.010, 2.155.020, 6.28.035 (2.64, 2.96, 2.144, 2.149, 2.153, 2.154, 2.155, 6.28)
BL2024-583	Amends §§ 7.16.090, 7.16.160, 7.16.170 (7.16)
BL2024-584	Establishes a program for the purpose of providing assistance to low-income elderly residents of the Metropolitan Government for Fiscal Year 2025 (Special)
BL2024-585	Approves the sale of approximately 0.04 acres of remnant property located west of First Avenue North, east of Second Avenue North, and north of Van Buren Street (Special)
BL2024-586	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Department of Parks and Recreation, and the National Endowment for the Humanities, the Tennessee Historic Preservation Society, Vanderbilt University, and Middle Tennessee State University (Special)
BL2024-587	Provides the honorary street name designation of "Jerry Austin Way" for a portion of Valeria Street (Special)
BL2024-588	MWS Project Nos. 22-WL-46 and 22-SL-107 and Proposal No. 2024M-075ES-002 (Special)
BL2024-589	MWS Project No. 23-SL-281 and Proposal No. 2024M-111ES-001 (Special)
BL2024-590	MWS Project Nos. 24-WL-16 and 24-SL-39 and Proposal No. 2024M-115ES-001 (Special)
BL2024-591	MWS Project Nos. 24-WL-08 and 24-SL-13 and Proposal No. 2024M-114ES-001 (Special)
BL2024-592	MWS Project No. 24-WL-32 and Proposal No. 2024M-117ES-001 (Special)
BL2024-593	Authorizes building material restrictions and requirements (Special)
BL2024-594	Amends § 17.04.060 (17.04)
BL2024-595	Amends § 17.36.675 (17.36)
BL2024-596	Approves a license agreement with All-Track (Special)
BL2024-597	Approves Amendment Number 2 to the contract between the Metropolitan Government of Nashville and Davidson County ("Metro") and Securus Technologies, LLC. ("Securus") (Special)
BL2024-598	Approves Amendment No. 7 to the Phillips-Jackson Street Redevelopment Plan (Special)
BL2024-599	Approves a greenway conservation easement (Special)
BL2024-600	Approves a greenway conservation easement (Special)
BL2024-601	Approves a greenway conservation easement (Special)
BL2024-602	Approves a greenway conservation easement (Special)
BL2024-603	Authorizes the granting of permanent easements, temporary construction easements, and access easements to Piedmont Natural Gas Co. (Special)
BL2024-604	Authorizes the granting of permanent and temporary construction easements to Piedmont Natural Gas Co. (Special)

Ordinance Number	Disposition
BL2024-605	Acquires permanent and temporary easements through negotiation, condemnation, and acceptance (Special)
BL2024-606	Abandons easement rights located at 701 7th Avenue South, formerly a portion of Alley No. 160 (Special)
BL2024-607	MWS Project Nos. 22-WL-55 and 22-SL-117 and Proposal No. 2024M-119ES-001 (Special)
BL2024-608	Amends official zoning map (Special)
BL2024-609	Amends official zoning map (Special)
BL2024-610	Amends official zoning map (Special)
BL2024-611	Amends official zoning map (Special)
BL2024-612	Amends official zoning map (Special)
BL2024-613	(Withdrawn)
BL2024-614	(Withdrawn)
BL2024-615	(Withdrawn)
BL2024-616	Amends official zoning map (Special)
BL2024-617	Amends §§ 17.04.060, 17.12.090 (17.04, 17.12)
BL2024-618	Amends official zoning map (Special)
BL2024-619	Amends official zoning map (Special)
BL2024-620	Amends official zoning map (Special)
BL2024-621	Amends official zoning map (Special)
BL2024-622	Amends official zoning map (Special)
BL2024-623	(Withdrawn)
BL2024-624	Amends official zoning map (Special)
BL2024-625	Authorizes building material restrictions and requirements (Special)
BL2024-626	Amends § 4.12.010 (4.12)
BL2024-627	Authorizes the granting of permanent and temporary construction easements (Special)
BL2024-628	Approves a participation agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Housing Division of the Metropolitan Planning Department, and Sojourn Nolensville Apartments, LP (Special)
BL2024-629	Acquires permanent and temporary easements through negotiation, condemnation and acceptance (Special)
BL2024-630	Accepts a donation of real property located at James Avenue (Special)
BL2024-631	Abandons existing public sewer mains, sewer manholes and easements, for 13 properties located on Broadway and McGavock Street (Special)
BL2024-632	MWS Project No. 24-SL-53 and Proposal No. 2024M-124ES-001 (Special)
BL2024-633	MWS Project Nos. 24-WL-20 and 24-SL-43 and Proposal No. 2024M-130ES-001 (Special)
BL2024-634	MWS Project Nos. 24-WL-06 and 24-SL-07 and Proposal No. 2024M-131ES-001 (Special)
BL2024-635	MWS Project No. 24-SL-177 and Proposal No. 2024M-129ES-001 (Special)
BL2024-636	MWS Project No. 24-SL-28 and Proposal No. 2024M-132ES-001 (Special)
BL2024-637	MWS Project Nos. 24-WL-25 and 24-SL-85 and Proposal No. 2024M-134ES-001 (Special)
BL2024-638	Approves an exchange of interests in real property adjacent to the site of the former Hillwood High School (Special)
BL2024-639	Authorizes the abandonment of Alley #1089 right-of-way, from Unnamed Road to Woodfolk Avenue, and Alley #1090 right-of-way, from Haynie Avenue to Alley #1089 (Special)
BL2024-640	MWS Project Nos. 24-WL-48 and 24-SL-167 and Proposal No. 2024M-135ES-001 (Special)
BL2024-641	Amends official zoning map (Special)
BL2024-642	Amends official zoning map (Special)
BL2024-643	Authorizes building material restrictions and requirements (Special)
BL2024-644	Amends official zoning map (Special)
BL2024-645	Authorizes building material restrictions and requirements (Special)
BL2024-646	Amends official zoning map (Special)
BL2024-647	Amends official zoning map (Special)
BL2024-648	Authorizes building material restrictions and requirements (Special)
BL2024-649	Amends official zoning map (Special)
BL2024-650	Amends official zoning map (Special)
BL2024-651	Amends official zoning map (Special)
BL2024-652	Amends official zoning map (Special)
BL2024-653	Amends official zoning map (Special)
BL2024-654	Amends official zoning map (Special)
BL2024-655	Authorizes building material restrictions and requirements (Special)
BL2024-656	Amends official zoning map (Special)
BL2024-657	Authorizes building material restrictions and requirements (Special)
BL2024-658	Amends official zoning map (Special)
BL2024-659	Authorizes building material restrictions and requirements (Special)
BL2024-660	Amends official zoning map (Special)
BL2024-661	Amends official zoning map (Special)
BL2024-662	Authorizes building material restrictions and requirements (Special)
BL2024-663	Amends official zoning map (Special)
BL2024-664	Authorizes building material restrictions and requirements (Special)
BL2024-665	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2024-666	Authorizes building material restrictions and requirements (Special)
BL2024-667	Amends official zoning map (Special)
BL2024-668	Authorizes building material restrictions and requirements (Special)
BL2024-669	Amends official zoning map (Special)
BL2024-670	Authorizes building material restrictions and requirements (Special)
BL2024-671	Amends official zoning map (Special)
BL2024-672	Amends official zoning map (Special)
BL2024-673	Amends official zoning map (Special)
BL2024-674	Amends official zoning map (Special)
BL2024-675	Amends official zoning map (Special)
BL2024-676	Amends official zoning map (Special)
BL2024-677	Approves a license agreement between the Metropolitan Government, acting by and through the Nashville Public Library, and Ancestry.com Operations, Inc. (Special)
BL2024-678	Adopts the geographic information systems street and alley centerline layer (Special)
BL2024-679	Authorizes 601 Lafayette Owner, LLC to construct and install an underground encroachment (Special)
BL2024-680	MWS Project No. 24-SL-174 and Proposal No. 2024M-136ES-001 (Special)
BL2024-681	Amends official zoning map (Special)
BL2024-682	Authorizes building material restrictions and requirements (Special)
BL2024-683	Amends § 17.24.030 (17.24)
BL2024-684	Amends official zoning map (Special)
BL2024-685	Amends official zoning map (Special)
BL2024-686	Authorizes building material restrictions and requirements (Special)
BL2024-687	Amends §§ 17.04.060, 17.28.065 (17.04, 17.28)
Amdt. 1	Amends § 2 of Ord. BL2024-687 (17.28)
BL2025-688	(Deferred indefinitely)
BL2025-689	Approves a memorandum of understanding between the Metropolitan Beer Permit Board and the Metropolitan Department of Codes Administration (Special)
BL2025-690	Amends § 13.08.080 (13.08)
Amdts. A—D	Amends § 2 of Ord. BL2025-690 (13.08)
BL2025-691	Approves an affiliation agreement by and between Vanderbilt University Medical Center and the Metropolitan Government of Nashville and Davidson County (Special)
BL2025-692	Approves a clinical affiliation agreement by and between Vanderbilt University and the Metropolitan Government of Nashville and Davidson County (Special)
BL2025-693	Approves a lease agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Davidson County Clerk's Office and Grace's Plaza, LTD. (Special)
BL2025-694	Approves Amendment Number 2 to a sole source contract between the Metropolitan Government of Nashville and Davidson County and Splash Business Intelligence, Inc. (Special)
BL2025-695	Approves a greenway conservation easement (Special)
BL2025-696	Approves a greenway conservation easement (Special)
BL2025-697	Approves a greenway conservation easement (Special)
BL2025-698	Approves a greenway conservation easement (Special)
BL2025-699	Authorizes the abandonment of unnamed right-of-way between 1321 Pawnee Trail and 1327 Pawnee Trail (Special)
BL2025-700	Acquires permanent and temporary easements through negotiation, condemnation and acceptance (Special)
BL2025-701	MWS Project Nos. 23-WL-68 and 23-SL-158 and Proposal No. 2024M-140ES-001 (Special)
BL2025-702	MWS Project No. 24-SL-119 and Proposal No. 2024M-145ES-001 (Special)
BL2025-703	(Pending)
BL2025-704	(Pending)
BL2025-705	Amends official zoning map (Special)
BL2025-706	Approves two greenway conservation easements (Special)
BL2025-707	Approves a greenway conservation easement (Special)
BL2025-708	Approves a greenway conservation easement and a participation agreement (Special)
BL2025-709	Approves an option agreement between the Metropolitan Government of Nashville and Davidson County and GTLC, LLC (Special)
BL2025-710	MWS Project Nos. 24-WL-51 and 24-SL-173 and Proposal No. 2024M-152ES-001 (Special)
BL2025-711	MWS Project Nos. 22-WL-148 and 22-SL-299 and Proposal No. 2024M-147ES-001 (Special)
BL2025-712	Amends official zoning map (Special)
BL2025-713	Authorizes building material restrictions and requirements (Special)
BL2025-714	Amends official zoning map (Special)
BL2025-715	Authorizes building material restrictions and requirements (Special)

Ordinance Number	Disposition
BL2025-716	Amends official zoning map (Special)
BL2025-717	Authorizes building material restrictions and requirements (Special)
BL2025-718	Amends official zoning map (Special)
BL2025-719	Amends official zoning map (Special)
BL2025-720	Amends official zoning map (Special)
BL2025-721	Authorizes building material restrictions and requirements (Special)
BL2025-722	Amends official zoning map (Special)
BL2025-723	Amends official zoning map (Special)
BL2025-724	Amends official zoning map (Special)
BL2025-725	Amends official zoning map (Special)
BL2025-726	Authorizes building material restrictions and requirements (Special)
BL2025-727	(Withdrawn)
BL2025-728	Amends official zoning map (Special)
BL2025-729	Amends official zoning map (Special)
BL2025-730	Amends official zoning map (Special)
BL2025-731	Amends official zoning map (Special)
BL2025-732	Amends official zoning map (Special)
BL2025-733	Amends official zoning map (Special)
BL2025-734	Authorizes building material restrictions and requirements (Special)
BL2025-735	Amends official zoning map (Special)
BL2025-736	Authorizes building material restrictions and requirements (Special)
BL2025-737	Amends official zoning map (Special)
BL2025-738	Amends official zoning map (Special)
BL2025-739	Amends official zoning map (Special)
BL2025-740	Authorizes building material restrictions and requirements (Special)
BL2025-741	Amends official zoning map (Special)
BL2025-742	Amends § 2.128.050; adds Ch. 2.130, §§ 2.130.010, 2.13.020; amends § 16.28.195 (2.128, 2.130, 16.28)
Amdt. A	Amends § 2 of Ord. BL2025-742 (2.130)
Amdt. B	Amends recitals of Ord. BL2025-742 (Special)
Amdt. C	Amends § 1 of Ord. BL2025-742 (2.128)
BL2025-743	(Withdrawn)
BL2025-744	Approves a greenway conservation easement (Special)
BL2025-745	Amends §§ 1.01.010—1.01.050 (1.01)
BL2025-746	Authorizes MDI Third Avenue Nashville, LLC to construct and install an underground encroachment at 311 3rd Avenue South (Special)
BL2025-747	Authorizies the abandonment of Alley #1881 right-of-way between Joyner Avenue and Alley #1879 (Special)
BL2025-748	MWS Project Nos. 24-WL-66 and 24-SL-218 and Proposal No. 2025M-003ES-001 (Special)
BL2025-749	Amends official zoning map (Special)
BL2025-750	Authorizes building material restrictions and requirements (Special)
BL2025-751	Amends official zoning map (Special)
BL2025-752	Amends official zoning map (Special)
BL2025-753	Authorizes building material restrictions and requirements (Special)
BL2025-754	Amends official zoning map (Special)
BL2025-755	Authorizes building material restrictions and requirements (Special)
BL2025-756	Amends official zoning map (Special)
BL2025-757	Authorizes building material restrictions and requirements (Special)
BL2025-758	Amends official zoning map (Special)
BL2025-759	Authorizes building material restrictions and requirements (Special)
BL2025-760	Amends official zoning map (Special)
BL2025-761	Amends § 17.37.010 (17.37)
Amdt. 1	Substitutes Exhibit A of Ord. BL2025-761 (17.37)
BL2025-762	Amends official zoning map (Special)
BL2025-763	Authorizes building material restrictions and requirements (Special)
BL2025-764	Amends official zoning map (Special)
BL2025-765	Amends official zoning map (Special)
BL2025-766	Amends official zoning map (Special)
BL2025-767	Amends official zoning map (Special)
BL2025-768	Amends official zoning map (Special)
BL2025-769	Amends official zoning map (Special)
BL2025-770	Amends §§ 2.40.100, 2.40.110, 2.40.115, 2.40.130, 2.40.140 (2.40)
Amdt. 1	Amends §§ 1—3 of Ord. BL2025-770 (2.40)
BL2025-771	Amends §§ 15.64.040, 15.64.050, 15.64.060, 15.64.070, 15.64.080, 15.64.090, 15.64.100, 15.64.105
Amdt. 1	Amends § 1 of Ord. BL2025-771 (15.64)
BL2025-772	Approves a lease agreement between the Metropolitan Government of Nashville and Davidson County, by and through the Auditorium Commission, and the Musicians Hall of Fame and Museum (Special)
BL2025-773	Approves an agreement between the Metropolitan Government of Nashville and Davidson County, acting by and through the Department of Parks and Recreation ("Parks"), and Belmont University (Special)
BL2025-774	Abandons easement rights for seven properties located along Convent Place (Special)
BL2025-775	MWS Project No. 24-SL-45 and Proposal No. 2025M-011ES-001 (Special)
BL2025-776	MWS Project Nos. 24-WL-59 and 24-SL-208 and Proposal No. 2025M-017ES-001 (Special)

Ordinance Number	Disposition
BL2025-777	MWS Project No. 24-WL-67 and Proposal No. 2025M-008ES-001 (Special)
BL2025-778	MWS Project No. 24-SL-170 and Proposal No. 2025M-010ES-001 (Special)
BL2025-779	MWS Project No. 24-SL-72 and Proposal No. 2025M-018ES-001 (Special)
BL2025-780	(Withdrawn)
BL2025-781	Approves a lease agreement by and between the Metropolitan Government of Nashville and Davidson County acting by and through the Metropolitan Board of Public Education and Municipal Communications III, LLC (Special)
BL2025-782	Designates public property within specified areas of downtown Nashville as a temporary "Special Event Zone" (Special)
BL2025-783	Authorizes the renaming of an unimproved portion of Toney Road to "Lillard Lane" (Special)
BL2025-784	Authorizes the renaming of a portion of Alley #1892 right-of-way, from Meade Avenue to Alley #1917, to "Frankie Alley" (Special)
BL2025-785	MWS Project No. 23-SL-275 and Proposal No. 2025M-022ES-001 (Special)
BL2025-786	MWS Project No. 24-SL-289 and Proposal No. 2025M-021ES-001 (Special)
BL2025-787	Amends official zoning map (Special)
BL2025-788	Authorizes building material restrictions and requirements (Special)
BL2025-789	Amends official zoning map (Special)
BL2025-790	Authorizes building material restrictions and requirements (Special)
BL2025-791	Amends official zoning map (Special)
BL2025-792	Authorizes building material restrictions and requirements (Special)
BL2025-793	(Deferred indefinitely)
BL2025-794	(Deferred indefinitely)
BL2025-795	Amends official zoning map (Special)
BL2025-796	Amends official zoning map (Special)
BL2025-797	Amends official zoning map (Special)
BL2025-798	Authorizes building material restrictions and requirements (Special)
BL2025-799	Amends § 17.37.010 (17.37)
BL2025-800	Amends official zoning map (Special)
BL2025-801	Authorizes building material restrictions and requirements (Special)
BL2025-802	Amends official zoning map (Special)
BL2025-803	Authorizes building material restrictions and requirements (Special)
BL2025-804	Amends official zoning map (Special)
BL2025-805	Amends official zoning map (Special)
BL2025-806	Authorizes building material restrictions and requirements (Special)
BL2025-807	Amends official zoning map (Special)
BL2025-808	(Deferred indefinitely)
BL2025-809	Amends official zoning map (Special)
BL2025-810	Authorizes building material restrictions and requirements (Special)
BL2025-811	Amends §§ 2.112.020, 2.153.020, 2.132.030; repeals § 2.132.050; amends §§ 6.54.020, 6.28.035, 2.155.020, 15.60.350 (2.112, 2.132, 2.153, 2.155, 6.28, 6.54, 15.60)
Amdt. 1	Amends § 1, adds § 19, renumbers subsequent sections, amends renumbered § 22, adds § 24 and renumbers subsequent sections of Ord. BL2025-811 (2.112, 2.155, 6.28, 15.60, Special)
BL2025-812	Amends § 6.72.010; repeals § 6.72.135; amends §§ 6.72.265, 6.72.350, 6.72.405, 6.72.425 (6.72)
Amdt. 1	Amends § 1 of Ord. BL2025-812 (6.72)
BL2025-813	Amends §§ 1.01.010—1.01.050 (1.01)
BL2025-814	MWS Project No. 25-SWC-205 and Proposal No. 2025M-031ES-001 (Special)
BL2025-815	MWS Project No. 24-WL-34 and Proposal No. 2025M-029ES-001 (Special)
BL2025-816	MWS Project No. 24-SL-228 and Proposal No. 2025M-028ES-001 (Special)
BL2025-817	MWS Project No. 24-SL-147 and Proposal No. 2025M-027ES-001 (Special)
BL2025-818	Repeals and replaces Ch. 2.147, §§ 2.147.010—2.147.065 (2.147)
BL2025-819	Adds §§ 10.20.001—10.20.004; amends §§ 10.20.010, 10.20.110, 10.20.130, 10.20.200, 10.20.220, 10.20.340, 10.20.380, 10.20.395 (10.20)
Amdt. 1	Amends §§ 8 and 9 of Ord. BL2025-819 (10.20, Special)
BL2025-820	Adds § 17.40.175 (17.40)
BL2025-821	Designates public property within specified areas of downtown Nashville as a temporary "Special Event Zone" (Special)
BL2025-822	Approves an agreement between the metropolitan government, acting by and through the Nashville Public Library, and Lipscomb University (Special)
BL2025-823	Approves a Solar Services Agreement between the metropolitan government, acting by and through the Department of General Services, and Cherry Street Asset Management Holdings, LLC (Special)
BL2025-824	Repeals § 15.64.035 (15.64)
BL2025-825	Acquires permanent and temporary easements (Special)
BL2025-826	MWS Project No. 24-SL-249 and Proposal No. 2025M-036ES-001 (Special)

Ordinance Number	Disposition
BL2025-827	MWS Project No. 23-SL-15 and Proposal No. 2025M-040ES-001 (Special)
BL2025-828	MWS Project Nos. 24-WL-74 and 24-SL-241 and Proposal No. 2025M-035ES-001 (Special)
BL2025-829	Amends official zoning map (Special)
BL2025-830	Amends official zoning map (Special)
BL2025-831	Amends official zoning map (Special)
BL2025-832	Authorizes building material restrictions and requirements (Special)
BL2025-833	Budget ordinance for fiscal year 2026 (Special)
BL2025-834	Establishes tax levy in the General Services District for fiscal year 2025—2026 (Special)
BL2025-835	Adopts capital improvements budget and program 2025—2026 through 2030—2031 (Special)
BL2025-836	Amends § 10.60.050 (10.60)
BL2025-837	(Withdrawn)
BL2025-838	Creates certain employment positions (Special)
BL2025-839	Approves the sale of approximately 0.03 acres of remnant property located west of First Avenue North, east of Second Avenue North, and north of Van Buren Street (Special)
BL2025-840	Approves a donation of a 1.88 acre parcel, an access and parking easement, and a participation agreement between the metropolitan government, through the Metropolitan Board of Parks and Recreation, and GS Rivergate Apartments LLC for park improvements at 300 Connare Drive (Special)
BL2025-841	Provides the honorary street name designation of "Dr. J. Lucious Fitzgerald, Sr. Way" for a portion of Underwood Street (Special)
BL2025-842	Authorizes the metropolitan government, acting by and through the Metropolitan Department of Water and Sewerage Services, to enter into an agreement with Cumberland River Compact ("CRC") (Special)
BL2025-843	Abandons easement rights for property located at 730 Main Street, formerly the easterly South 8th Street right-of-way (Special)
BL2025-844	MWS Project No. 24-SL-256 and Proposal No. 2025M-033ES-001 (Special)
BL2025-845	MWS Project No. 24-SL-138 and Proposal No. 2025M-038ES-001 (Special)
BL2025-846	Repeals and replaces Ch. 2.177, §§ 2.177.010—2.177.090 (2.177)
Amdts. 1—5	Amends § 1 of Ord. BL2025-846 (2.177)
BL2025-847	Approves a revised organizational plan for the Metropolitan Public Health Department (Special)
BL2025-848	Approves an agreement between the metropolitan government, acting by and through the Nashville Fire Department, Emergency Medical Services Division, and the Ascension Saint Thomas EMT Training Program to provide the Ascension Saint Thomas School of EMS students with practical experience in EMS-based patient care activities (Special)
BL2025-849	Grants amendment three to a contract between the metropolitan government and Digitech Computer, LLC for fire medical emergency billing and collection services (Special)
BL2025-850	Acquires permanent and temporary easements (Special)
BL2025-851	Acquires permanent easements (Special)
BL2025-852	MWS Project No. 24-SL-227 and Proposal No. 2025M-045ES-001 (Special)
BL2025-853	MWS Project Nos. 24-WL-82 and 24-SL-264 and Proposal No. 2025M-050ES-001 (Special)
BL2025-854	MWS Project No. 24-SL-263 and Proposal No. 2025M-009ES-001 (Special)
BL2025-855	MWS Project No. 24-SL-122 and Proposal No. 2025M-024ES-001 (Special)
BL2025-856	MWS Project Nos. 23-WL-90 and 23-SL-235 and Proposal No. 2025M-054ES-001 (Special)
BL2025-857	MWS Project No. 25-SL-71 and Proposal No. 2025M-062ES-001 (Special)
BL2025-858	MWS Project Nos. 24-WL-64 and 24-SL-215 and Proposal No. 2025M-055ES-001 (Special)
BL2025-859	MWS Project No. 23-WL-144 and Proposal No. 2025M-049ES-001 (Special)
BL2025-860	Amends official zoning map (Special)
BL2025-861	Authorizes building material restrictions and requirements (Special)
BL2025-862	Amends official zoning map (Special)
BL2025-863	Authorizes building material restrictions and requirements (Special)
BL2025-864	Amends official zoning map (Special)
BL2025-865	Authorizes building material restrictions and requirements (Special)
BL2025-866	Amends official zoning map (Special)
BL2025-867	Amends official zoning map (Special)
BL2025-868	Amends official zoning map (Special)
BL2025-869	Authorizes building material restrictions and requirements (Special)
BL2025-870	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2025-871	Amends official zoning map (Special)
BL2025-872	(Deferred indefinitely)
BL2025-873	(Deferred indefinitely)
BL2025-874	Amends official zoning map (Special)
BL2025-875	Authorizes building material restrictions and requirements (Special)
BL2025-876	Amends official zoning map (Special)
BL2025-877	Amends official zoning map (Special)
BL2025-878	Authorizes building material restrictions and requirements (Special)
BL2025-879	Amends official zoning map (Special)
BL2025-880	Authorizes building material restrictions and requirements (Special)
BL2025-881	Amends official zoning map (Special)
BL2025-882	(Deferred indefinitely)
BL2025-883	(Deferred indefinitely)
BL2025-884	Amends official zoning map (Special)
BL2025-885	Authorizes building material restrictions and requirements (Special)
BL2025-886	Amends official zoning map (Special)
BL2025-887	Authorizes building material restrictions and requirements (Special)
BL2025-888	Amends official zoning map (Special)
BL2025-889	Authorizes building material restrictions and requirements (Special)
BL2025-890	Amends official zoning map (Special)
BL2025-891	Amends official zoning map (Special)
BL2025-892	Authorizes building material restrictions and requirements (Special)
BL2025-893	Amends official zoning map (Special)
BL2025-894	Amends official zoning map (Special)
BL2025-895	Amends official zoning map (Special)
BL2025-896	(Withdrawn)
BL2025-897	Amends §§ 15.64.010, 15.64.130, 15.64.131 (15.64)
Amdt. 1	Amends recitals and § 2 of Ord. BL2025-897 (Special, 15.64)
BL2025-898	Amends §§ 16.08.010, 16.08.012, 16.08.014, 16.08.016, 16.12.120, 16.12.130, 16.12.140, 16.16.180, 16.16.190, 16.16.230, 16.16.240, 16.16.250, 16.16.260, 16.16.270, 16.16.280, 16.16.290, 16.16.300, 16.16.310, 16.16.320, 16.20.140, 16.20.150, 16.20.154 (16.08, 16.12, 16.16, 16.20)
BL2025-899	Authorizes the abandonment of Alley #89 right-of-way from 2nd Avenue South to Alley #148 (Special)
BL2025-900	Authorizes the abandonment of Unnumbered Alley right-of-way from 1st Avenue South to Alley #169 (Special)
BL2025-901	Acquires a portion of property and easements (Special)
BL2025-902	MWS Project No. 23-WL-272 and Proposal No. 2025M-069ES-001 (Special)
BL2025-903	MWS Project Nos. 24-WL-81 and 24-SL-262 and Proposal No. 2025M-023ES-002 (Special)
BL2025-904	MWS Project No. 24-SL-252 and Proposal No. 2025M-064ES-001 (Special)
BL2025-905	MWS Project No. 24-SL-83 and Proposal No. 2025M-066ES-001 (Special)
BL2025-906	(Withdrawn)
BL2025-907	Amends § 15.64.170 (15.64)
BL2025-908	Amends §§ 17.08.030, 17.16.070 (17.08, 17.16)
Amdt. 1	Amends § 2 of Ord. BL2025-908 (17.16)
BL2025-909	Amends § 17.08.030; adds §§ 17.36.740, 17.36.750, 17.36.760, 17.36.770, 17.36.780; amends § 17.40.740 (17.08, 17.36, 17.40)
Amdt. 1	Amends § 5 of Ord. BL2025-909 (17.36)
BL2025-910	(Withdrawn)
BL2025-911	Approves a lease agreement (Special)
BL2025-912	Approves a pilot project between Vanderbilt University and the Metropolitan Government of Nashville and Davidson County, acting by and through the Department of Water and Sewerage Services, for the provision of early warning detection for water management systems (Special)
BL2025-913	Acquires permanent and temporary easements (Special)
BL2025-914	Abandons existing public utility easement rights, for the specific area of property located at 1431 Vultee Boulevard (Special)
BL2025-915	MWS Project No. 10-DL-0030 and Proposal No. 2025M-067ES-001 (Special)
BL2025-916	SWGR T2023017337 and Proposal No. 2025M-032ES-001 (Special)
BL2025-917	MWS Project No. 24-WL-56 and Proposal No. 2025M-030ES-001 (Special)
BL2025-918	MWS Project Nos. 21-WL-67 and 21-SL-147 and Proposal No. 2025M-063ES-001 (Special)
BL2025-919	MWS Project Nos. 25-WL-16 and 25-SL-40 and Proposal No. 2025M-070ES-001 (Special)
BL2025-920	MWS Project Nos. 25-WL-25 and 25-SL-50 and Proposal No. 2025M-068ES-001 (Special)
BL2025-921	MWS Project No. 24-SL-226 and Proposal No. 2025M-026ES-001 (Special)
BL2025-922	MWS Project No. 25-SL-73 and Proposal No. 2025M-079ES-001 (Special)
BL2025-923	MWS Project Nos. 24-WL-39 and 24-SL-140 and Proposal No. 2025M-080ES-001 (Special)
BL2025-924	MWS Project No. 25-WL-19 and Proposal No. 2025M-075ES-001 (Special)

Ordinance Number	Disposition
BL2025-925	Amends official zoning map (Special)
BL2025-926	Amends official zoning map (Special)
BL2025-927	Amends official zoning map (Special)
BL2025-928	Amends official zoning map (Special)
BL2025-929	Authorizes building material restrictions and requirements (Special)
BL2025-930	Amends official zoning map (Special)
BL2025-931	(Withdrawn)
BL2025-932	(Withdrawn)
BL2025-933	Amends official zoning map (Special)
BL2025-934	Authorizes building material restrictions and requirements (Special)
BL2025-935	Amends official zoning map (Special)
BL2025-936	Amends official zoning map (Special)
BL2025-937	Authorizes building material restrictions and requirements (Special)
BL2025-938	Amends official zoning map (Special)
BL2025-939	Amends official zoning map (Special)
BL2025-940	Amends official zoning map (Special)
BL2025-941	Amends official zoning map (Special)
BL2025-942	Authorizes building material restrictions and requirements (Special)
BL2025-943	Amends official zoning map (Special)
BL2025-944	Amends official zoning map (Special)
BL2025-945	Amends official zoning map (Special)
BL2025-946	Amends official zoning map (Special)
BL2025-947	Amends official zoning map (Special)
BL2025-948	Amends § 2.40.115 (2.40)
BL2025-949	Amends § 17.40.600 (17.40)
Amdt. 1	Amends § 1 of Ord. BL2025-949 (17.40)
BL2025-950	Authorizes Henrad Centennial Development I, LLC to maintain an underground and aboveground encroachment at 5701 Centennial Boulevard (Special)
BL2025-951	Project No. SWGR 2022086190 and Proposal Number 2025M-026AG-001 (Special)
BL2025-952	(Pending)
BL2025-953	Adds Ch. 2.61, §§ 2.61.010—2.61.040 (2.61)
BL2025-954	Amends § 6.77.010; adds Ch. 6.78, §§ 6.78.010—6.78.380 (6.77, 6.78)
BL2025-955	(Withdrawn)
BL2025-956	Amends § 12.40.180; repeals § 12.40.190 (12.40)
BL2025-957	Amends § 13.32.165 (13.32)
BL2025-958	Amends §§ 17.04.060, 17.08.030, 17.16.070 (17.04, 17.08, 17.16)
BL2025-959	Amends §§ 1.01.010—1.01.050 (1.01)
BL2025-960	Abandons a portion of an existing utility easement (Special)
BL2025-961	MWS Project Nos. 24-WL-72 and 24-SL-233 (Special)
BL2025-962	MWS Project Nos. 24-WL-73 and 24-SL-234 (Special)
BL2025-963	MWS Project Nos. 24-WL-52 and 24-SL-190 (Special)
BL2025-964	MWS Project No. 24-SL-19 (Special)
BL2025-965	MWS Project Nos. 25-WL-45 and 25-SL-109 (Special)
BL2025-966	MWS Project Nos. 24-WL-50 and 24-SL-171 (Special)
BL2025-967	MWS Project No. 24-WL-19 and 24-SL-41 (Special)
BL2025-968	MWS Project Nos. 25-WL-32 and 25-SL-64 (Special)
BL2025-969	MWS Project No. 24-SL-257 (Special)
BL2025-970	MWS Project Nos. 25-WL-18 and 25-SL-42 (Special)
BL2025-971	MWS Project No. 24-SL-255 (Special)
BL2025-972	MWS Project Nos. 24-WL-13 and 24-SL-26 (Special)
BL2025-973	MWS Project Nos. 23-WL-10 and 23-SL-271 (Special)
BL2025-974	MWS Project No. 24-SL-172 (Special)
BL2025-975	MWS Project No. 24-WL-26 (Special)
BL2025-976	Amends official zoning map (Special)
BL2025-977	Amends official zoning map (Special)
BL2025-978	Amends official zoning map (Special)
BL2025-979	Authorizes building material restrictions and requirements (Special)
BL2025-980	Amends official zoning map (Special)
BL2025-981	Amends official zoning map (Special)
BL2025-982	Amends official zoning map (Special)
BL2025-983	Authorizes building material restrictions and requirements (Special)
BL2025-984	Amends official zoning map (Special)
BL2025-985	Amends official zoning map (Special)
BL2025-986	Authorizes building material restrictions and requirements (Special)
BL2025-987	Amends official zoning map (Special)
BL2025-988	Authorizes building material restrictions and requirements (Special)
BL2025-989	Amends official zoning map (Special)
BL2025-990	Amends official zoning map (Special)
BL2025-991	Authorizes building material restrictions and requirements (Special)
BL2025-992	Amends official zoning map (Special)
BL2025-993	Amends official zoning map (Special)
BL2025-994	Authorizes building material restrictions and requirements (Special)
BL2025-995	Amends §§ 10.26.010, 10.28.010, 16.24.330 (10.26, 10.28, 16.24)
Amdt. 1	Amends §§ 1—3 of Ord. BL2025-995 (10.26, 10.28, 16.24)

Ordinance Number	Disposition
BL2025-996	Authorizes the Nashville Department of Transportation and Multimodal Infrastructure (NDOT) to construct, install, and maintain underground and aboveground encroachments (Special)
BL2025-997	Authorizes PR II/SH Peabody Union Apartments Owner, LLC to construct and install an underground encroachment (Special)
BL2025-998	MWS Project No. 25-SL-106 (Special)
BL2025-999	MWS Project No. 24-SL-254 (Special)
BL2025-1000	MWS Project No. 23-SL-134 (Special)
BL2025-1001	MWS Project No. 24-SL-54 (Special)
BL2025-1002	MWS Project No. 24-SL-217 (Special)
BL2025-1003	Amends § 10.60.020 (10.60)
BL2025-1004	Amends §§ 10.64.010, 10.64.012, 10.64.017; adds §§ 10.64.019, 10.64.020, 10.64.021, 10.64.022, 10.64.023; renumbers § 10.64.020 as § 10.64.024 (10.64)
BL2025-1005	Amends §§ 17.04.060, 17.08.010, 17.08.020, 17.08.030, 17.12.020, 17.12.040, 17.12.060, 17.12.100, 17.16.030, 17.20.020, 17.24.230, 17.28.100; adds Ch. 17.38, §§ 17.38.010, 17.38.010.A—17.38.010.C, 17.38.020.A—17.38.020.N, 17.38.030.A—17.38.030.H; amends § 17.40.340; adds § 17.40.545 (17.04, 17.08, 17.12, 17.16, 17.20, 17.24, 17.28, 17.38, 17.40)
Amdt. A	Amends recitals and § 3 of Ord. BL2025-1005 (Special)
Amdt. B	Amends recitals of Ord. BL2025-1005 (Special)
Amdt. C	Amends § 1(Exh. F) of Ord. BL2025-1005 (17.38)
Amdt. D	Adds § 2 and renumbers subsequent section of Ord. BL2025-1005 (Special)
BL2025-1006	Amends §§ 17.04.060, 17.12.020, 17.12.060, 17.16.030 (17.04, 17.12, 17.16)
Amdt. A	Amends §§ 1, 2 of Ord. BL2025-1006 (17.04, 17.12)
Amdt. B	Amends § 2 of Ord. BL2025-1006 (17.12)
Amdt. C	Adds § 6 and renumbers subsequent section of Ord. BL2025-1006 (Special)
Amdt. D	Amends §§ 2, 7 of Ord. BL2025-1006 (17.12, Special)
BL2025-1007	Amends §§ 17.04.060, 17.08.030, 17.12.040, 17.12.050, 17.16.030, 17.20.030, 17.36.380, 17.36.390, 17.36.710, 17.36.730 (17.04, 17.08, 17.12, 17.16, 17.20, 17.36)
Amdt. A	Amends § 5 of Ord. BL2025-1007 (17.16)
Amdt. B	Adds § 11 and renumbers subsequent section of Ord. BL2025-1007 (Special)
BL2025-1008	(Pending)
BL2025-1009	Approves a lease agreement (Special)
BL2025-1010	Grants a temporary construction easement (Special)
BL2025-1011	Approves two lease agreements (Special)
BL2025-1012	Acquires permanent and temporary easements (Special)
BL2025-1013	MWS Project Nos. 25-WL-39 and 24-SL-168 (Special)
BL2025-1014	MWS Project Nos. 25-SL-130 (Special)
BL2025-1015	MWS Project Nos. 23-WL-93 and 23-SL-258 (Special)
BL2025-1016	MWS Project No. 23-WL-62 (Special)
BL2025-1017	MWS Project Nos. 24-WL-84 and 24-SL-269 (Special)
BL2025-1018	MWS Project Nos. 25-WL-11 and 25-SL-101 (Special)
BL2025-1019	Accepts and appropriates Public Water System Settlement Funds from the 3M Company (Special)
BL2025-1020	Amends official zoning map (Special)
BL2025-1021	Authorizes building material restrictions and requirements (Special)
BL2025-1022	Amends official zoning map (Special)
BL2025-1023	Authorizes building material restrictions and requirements (Special)
BL2025-1024	Amends official zoning map (Special)
BL2025-1025	Authorizes building material restrictions and requirements (Special)
BL2025-1026	Amends official zoning map (Special)
BL2025-1027	Authorizes building material restrictions and requirements (Special)
BL2025-1028	Amends official zoning map (Special)
BL2025-1029	Amends official zoning map (Special)
BL2025-1030	Amends official zoning map (Special)
BL2025-1031	Authorizes building material restrictions and requirements (Special)
BL2025-1032	Amends official zoning map (Special)
BL2025-1033	Amends official zoning map (Special)
BL2025-1034	Amends official zoning map (Special)
BL2025-1035	Authorizes building material restrictions and requirements (Special)
BL2025-1036	Amends official zoning map (Special)
BL2025-1037	Authorizes building material restrictions and requirements (Special)
BL2025-1038	Amends official zoning map (Special)
BL2025-1039	Authorizes building material restrictions and requirements (Special)
BL2025-1040	Amends official zoning map (Special)
BL2025-1041	Amends official zoning map (Special)
BL2025-1042	Authorizes building material restrictions and requirements (Special)
BL2025-1043	Amends official zoning map (Special)
BL2025-1044	Amends official zoning map (Special)
BL2025-1045	Amends official zoning map (Special)
BL2025-1046	Amends official zoning map (Special)

Ordinance Number	Disposition
BL2025-1047	Amends § 9.20.020 (9.20)
Amdt. 1	Amends § 1 of Ord. BL2025-1047 (9.20)
BL2025-1048	Repeals § 16.04.200; amends § 16.24.330 (16.24)
Amdt. 1	Amends § 2 of Ord. BL2025-1048 (16.24)
Amdt. 2	Amends § 2 of Ord. BL2025-1048 (16.24)
BL2025-1049	Approves the first amendment to a lease agreement between the Metropolitan Government of Nashville and Davidson County and Little Big Properties, LLC (Special)
BL2025-1050	Approves agreement with Nashville Riverfront Amphitheater (Special)
BL2025-1051	Abandonment of a portion of Union Bridge Road between Pasquo Road and Union Bridge Road (Special)
BL2025-1052	Abandonment of unnamed right-of-way and utility easements off West Trinity Lane (Special)
BL2025-1053	Abandonment of JJ Watson Avenue right-of-way from dead-end then southeast 288 feet (Special)
BL2025-1054	Authorizes Vision Nashville West End, LLC to construct, install, and maintain aerial and underground encroachments (Special)
BL2025-1055	Authorizes Nashville Downtown Partnership to construct, install, and maintain an underground encroachment(Special)
BL2025-1056	Authorizes the State of Tennessee to construct, install, and maintain underground encroachments (Special)
BL2025-1057	MWS Project No. 25-SL-115 (Special)
BL2025-1058	MWS Project No. 25-SL-124 (Special)
BL2025-1059	Abandons existing sanitary sewer and temporary construction easement rights (Special)
BL2025-1060	Abandons a portion of existing easement rights (Special)
BL2025-1061	Adds Ch. 2.114, §§ 2.114.010—2.114.030 (2.114)
Amdt. 1	Amends § 2 of Ord. BL2025-1061 (2.114)
BL2025-1062	Amends § 2.154.010 (2.154)
Amdt. 1	Amends § 1 of Ord. BL2025-1062 (2.154)
BL2025-1063	(Withdrawn)
BL2025-1064	Amends § 3.24.020 (3.24)
BL2025-1065	Amends §§ 4.12.010, 4.36.020 (4.12, 4.36)
BL2025-1066	Repeals § 4.12.050; amends § 4.12.020 (4.12)
BL2025-1067	Amends § 4.12.060 (4.12)
BL2025-1068	Amends § 4.12.220 (4.12)
BL2025-1069	Amends § 4.40.050 (4.40)
Amdt. 1	Amends § 1 of Ord. BL2025-1069 (4.40)
BL2025-1070	Amends §§ 16.04.172, 16.24.060 (16.04, 16.24)
BL2025-1071	Amends §§ 16.24.330, 16.24.340 (16.24)
BL2025-1072	(Withdrawn)
BL2025-1073	Repeals Ord. BL2008-248 (Special)
BL2025-1074	Amends §§ 1.01.010—1.01.050 (1.01)
BL2025-1075	Approves Amendment 1 to the contract between the Metropolitan Government of Nashville and Davidson County, through the Nashville Department of Transportation and Multimodal Infrastructure, and LTR Intermediate Holdings, Inc. d/b/a Liberty Tire Recycling, for the collection and disposal of scrap tires (Special)
BL2025-1076	Abandons existing public utility easement rights (Special)
BL2025-1077	MWS Project No. 25-SL-133 (Special)
BL2025-1078	MWS Project No. 25-SL-134 (Special)
BL2025-1079	MWS Project No. 25-SL-135 (Special)
BL2025-1080	MWS Project No. 25-SL-129 (Special)
BL2025-1081	MWS Project No. 25-SL-128 (Special)
BL2025-1082	MWS Project No. 24-WL-76 (Special)
BL2025-1083	MWS Project Nos. 25-WL-29 and 25-SL-96 (Special)
BL2025-1084	MWS Project No. 24-SL-203 (Special)
BL2025-1085	MWS Project Nos. 23-WL-98 and 23-SL-268 (Special)
BL2025-1086	MWS Project Nos. 25-WL-10 and 25-SL-23 (Special)
BL2025-1087	Amends official zoning map (Special)
BL2025-1088	Amends official zoning map (Special)
BL2025-1089	Amends official zoning map (Special)
BL2025-1090	Authorizes building material restrictions and requirements (Special)
BL2025-1091	Amends official zoning map (Special)
BL2025-1092	Amends official zoning map (Special)
BL2025-1093	Amends official zoning map (Special)
BL2025-1094	Authorizes building material restrictions and requirements (Special)
BL2025-1095	Amends official zoning map (Special)
BL2025-1096	Authorizes building material restrictions and requirements (Special)
BL2025-1097	Amends official zoning map (Special)
BL2025-1098	Amends official zoning map (Special)
BL2025-1099	Authorizes building material restrictions and requirements (Special)
BL2025-1100	Amends official zoning map (Special)
BL2025-1101	Amends §§ 16.12.240, 16.12.295, 16.16.470, 16.16.480, 16.20.260, 16.20.345 (16.12, 16.16, 16.20)
BL2025-1102	Approves a lease agreement (Special)

Ordinance Number	Disposition
BL2025-1103	Approves Amendment No. 1 to the Cayce Place Redevelopment Plan and, Amendment No. 2 to the Jefferson Street Redevelopment Plan (Special)
BL2025-1104	Approves Amendment No. 2 to the East Bank Redevelopment Plan (Special)
BL2025-1105	Approves Amendment Number 2 to the contract between the Metropolitan Government of Nashville and Davidson County and Cigna Health and Life Insurance Company (Special)
BL2025-1106	Approves a limited revocable license agreement (Special)
BL2025-1107	Approves a greenway conservation easement (Special)
BL2025-1108	Authorizes the renaming of South Street to "King Hollands Avenue" (Special)
BL2025-1109	MWS Project No. 25-SL-148 (Special)
BL2025-1110	MWS Project No. 25-WL-50 (Special)
BL2025-1111	MWS Project No. 25-WL-63 (Special)
BL2025-1112	MWS Project No. 25-WL-64 (Special)
BL2025-1113	Adds Ch. 2.179, §§ 2.179.010—2.179.110 (2.179)
Amdt. 1	Amends § 1 of Ord. BL2025-1113 (2.179)
BL2025-1114	(Withdrawn)
BL2025-1115	(Pending)
BL2025-1116	(Pending)
BL2025-1117	Designates public property within specified areas of downtown Nashville as a temporary "Special Event Zone" (Special)
BL2025-1118	Approves a license and lease agreement (Special)
BL2025-1119	Approves a greenway conservation easement (Special)
BL2025-1120	Approves a greenway conservation easement (Special)
BL2025-1121	Provides the honorary street name designation of "Dr. Harold W. Jordan Way" for a portion of Morena Street (Special)
BL2025-1122	Authorizes 450-460 BidCo LLC to construct, install, and maintain two underground encroachments and one aerial encroachment (Special)
BL2025-1123	Authorizes Nashville Phase I Property Holder LLC to construct and install aerial and underground encroachments (Special)
BL2025-1124	Acquires permanent and temporary easements through negotiation, condemnation and acceptance (Special)
BL2025-1125	Abandons existing public utility and drainage easement rights (Special)
BL2025-1126	MWS Project No. 25-SL-58 (Special)
BL2025-1127	MWS Project No. 25-SL-142 (Special)
BL2025-1128	MWS Project Nos. 25-WL-52 and 25-SL-118 (Special)
BL2025-1129	MWS Project Nos. 25-WL-37 and 25-SL-87 (Special)
BL2025-1130	Amends official zoning map (Special)
BL2025-1131	Amends official zoning map (Special)
BL2025-1132	Amends official zoning map (Special)
BL2025-1133	Authorizes building material restrictions and requirements (Special)
BL2025-1134	Amends official zoning map (Special)
BL2025-1135	Amends official zoning map (Special)
BL2025-1136	Grants a temporary construction easement (Special)
BL2025-1137	Approves an agreement between ATS Operating, LLC ("ATS") and the Metropolitan Government of Nashville and Davidson County, by and through the Office of Family Safety ("OFS") (Special)
BL2025-1138	Approves Amendment 3 to Contract #455783 (Special)
BL2025-1139	Abandons easement rights (Special)
BL2025-1140	MWS Project No. 25-SL-126 (Special)
BL2025-1141	MWS Project No. 24-SL-242 (Special)

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ACCIDENTS
System of employee benefit plans
Expense for treatment of accidental injury in course of employment to be borne by metropolitan government 13.12

ACCOUNTING
Department of water and sewerage services
Accounting system 8.506

ADMINISTRATIVE BOARDS AND COMMISSIONS
Agricultural extension board ..... 11.801 et seq.
See: AGRICULTURAL EXTENSION BOARD
Appointments to administrative boards and commissions; former boards and commissions continued 20.13
Board of equalization ..... 11.201 et seq.
See: BOARD OF EQUALIZATION
Electric power board 11.301
Farmers market board ..... 11.701 et seq.
See: FARMERS MARKET
General provisions
By-laws, rules and regulations to be filed with metropolitan clerk 11.107
Election of chairman, vice-chairman and secretary 11.105
Employment of personnel 11.108
General provisions control except as specified 11.101
Holding over of member after expiration of term; appointment of successor, reappointment 11.101.1
Members to hold no other metropolitan office or position 11.106
Qualifications of members 11.102
Quorum 11.103
Regular and special meetings 11.104
Removal of members 11.109
Metropolitan board of fair commissioners ..... 11.601 et seq.
See: METROPOLITAN BOARD OF FAIR COMMISSIONERS

ADMINISTRATIVE BOARDS AND COMMISSIONS (Cont'd.)
Metropolitan board of parks and recreation ..... 11.1001 et seq.
See: METROPOLITAN BOARD OF PARKS AND RECREATION
Metropolitan planning commission. 11.501 et seq.
See: METROPOLITAN PLANNING COMMISSION
Metropolitan social services commission ..... 11.1101 et seq.
See: METROPOLITAN SOCIAL SEVICES
Metropolitan traffic and parking commission ..... 11.901 et seq.
See: METROPOLITAN TRAFFIC AND PARKING COMMISSION
Nashville Transit Authority 11.401
Public library ..... 11.1201 et seq.
See: LIBRARIES

AGE REQUIREMENTS
Metropolitan county council, the ... 3.02

AGREEMENTS. See: CONTRACTS AND AGREEMENTS

AGRICULTURAL EXTENSION BOARD
Created; number, qualifications, appointment and term of office of members 11.801
Functions and duties 11.802

AIRPLANES AND AIRPORTS
Department of aviation ..... 8.701 et seq.
See: AVIATION AND AIRCRAFTS

ALCOHOLIC BEVERAGES
Regulation and sale of alcoholic beverages not affected by Charter 18.08

AMENDMENTS
Amending charter
Amending the Charter 19.01
Amendment by council resolution 19.02
Amendment by petition 19.03
Charter revision commission authorized 19.05

AMENDMENTS (Cont'd.)
Implementation and strict construction 19.06
Referendum election..... 19.04
APPEALS
Board of zoning appeals..... 18.03
Metropolitan general sessions court 14.26
APPOINTMENTS
Administrative boards and commissions
Appointment of successor, reappointment 11.101.1
Agricultural extension board 11.801
Appointments to administrative boards and commissions; former boards and commissions continued 20.13
Board of equalization 11.201
Department of aviation..... 8.703
Department of law
Appointment, qualifications, compensation and powers and duties of director of law; designated metropolitan attorney 8.603
Director of department of fire 8.304
Director of finance 8.102
Director of hospitals 10.204
Farmers market board 11.701
Metropolitan board of fair commissioners 11.601
Metropolitan planning commission. 11.502
Metropolitan police, department of
Appointment of director 8.204
Public health and hospitals
Director of health and chief medical officer
Appointment and qualifications..... 10.105
Transition and effective date
Appointments to administrative boards and commissions; former boards and commissions continued..... 20.13
Certain members of county highway patrol and of the park police appointed..... 20.11
Certain metropolitan officers appointed..... 20.08
APPROPRIATIONS
Authorization to council with respect to certain special appropriations..... 18.11
APPROPRIATIONS (Cont'd.)
Budgets and financial matters, the.. 6.08
Metropolitan county mayor and vice mayor, the
Mayor's veto power; veto of items 5.04
No appropriation authorized from budget of general services district to finance certain deficits 18.12
ATTORNEYS
Assistant metropolitan attorneys ... 8.605
Public defender ..... 14.10 et seq.
See: COURTS
AUDITS
Post audit 6.15
AVIATION AND AIRCRAFTS
Department of aviation
Created 8.701
Director of aviation
Powers and duties 8.704
Qualifications, appointment and compensation 8.703
Functions 8.702

— B —

BAIL
Metropolitan general sessions court
Bail in misdemeanor cases..... 14.16
BENEFITS
System of employee benefit plans.. 13.01 et seq.
See: OFFICERS AND EMPLOYEES
Transition and effective date
Transitional provisions as to employee benefits 20.17
BIDS AND BIDDING
Metropolitan finance, department of
Competitive bidding for purchases or sales..... 8.111
BOARD OF EQUALIZATION
Compensation of board members... 11.204
Established; members, appointment, qualifications and vacancies 11.201
General law applicable 11.205
Powers and duties 11.202
Right of complaint 11.203

BOARDS, COMMITTEES AND COMMISSIONS. See also: DEPARTMENTS AND OTHER AGENCIES
Administrative boards and commissions ..... 11.101 et seq.
See: ADMINISTRATIVE BOARDS AND COMMISSIONS
Agricultural extension board ..... 11.801 et seq.
See: AGRICULTURAL EXTENSION BOARD
Amending charter
Charter revision commission authorized 19.05
Appointments to administrative boards and commissions; former boards and commissions continued 20.13
Board of equalization ..... 11.201 et seq.
See: BOARD OF EQUALIZATION
Board of zoning appeals..... 18.03
Charter revision commission authorized..... 19.03
Civil service commission..... 12.02 et seq.
See: CIVIL SERVICE
Councilmen disqualified for membership on certain boards and commissions..... 18.13
Electric power board 11.301
Farmers market board ..... 11.701 et seq.
See: FARMERS MARKET
Metropolitan board of fair commissioners ..... 11.601 et seq.
See: METROPOLITAN BOARD OF FAIR COMMISSIONERS
Metropolitan board of health ..... 10.101 et seq.
See: PUBLIC HEALTH AND HOSPITALS
Metropolitan board of hospitals .... 10.201 et seq.
See: PUBLIC HEALTH AND HOSPITALS
Metropolitan board of parks and recreation ..... 11.1001 et seq.
See: METROPOLITAN BOARD OF PARKS AND RECREATION
BOARDS, COMMITTEES AND COMMISSIONS (Cont'd.)
Metropolitan employee benefit board..... 13.02 et seq.
See: OFFICERS AND EMPLOYEES
Metropolitan planning commission. 11.501 et seq.
See: METROPOLITAN PLANNING COMMISSION
Metropolitan social services commission ..... 11.1101 et seq.
See: METROPOLITAN SOCIAL SEVICES
Metropolitan traffic and parking commission ..... 11.901 et seq.
See: METROPOLITAN TRAFFIC AND PARKING COMMISSION
Nashville Transit Authority 11.401
Public library ..... 11.1201 et seq.
See: LIBRARIES
Public schools
Board of education ..... 9.02 et seq.
See: SCHOOLS
System of employee benefit plans
Investments committee 13.04
BOND ISSUES
Amount and purpose; obligations; form issuance 7.09
Bond proceeds constitute trust fund 7.15
Bonds authorized by metropolitan council; purposes of issue 7.01
Bonds issued by resolution of council; notice of right to contest 7.14
Combined tax and revenue bonds .. 7.18
Costs includable; bonds for furnishings and equipment 7.03
Debt service funds 7.20
Definitions 7.02
General tax bonds and urban tax bonds 7.04
Issuance of bonds under general law..... 7.07
Limitations on urban bonds 7.08
Metropolitan bonds negotiable and tax exempt 7.10
Referendum election after petition of protest..... 7.06
Refunding bonds 7.11

BOND ISSUES (Cont'd.)
Refunding revenue bonds 7.19
Revenue bonds 7.17
Sale 7.12
Temporary financing 7.13
Unissued bonds of county or city ... 7.16
When bond referendum not required; notice of issue 7.05
BONDS
Fidelity bonds 18.14
Metropolitan finance, department of
Bond of metropolitan trustee 8.117
Metropolitan general sessions court 14.15 et seq.
See: COURTS
Tax assessor
Surety bond 8.114
BOUNDARIES
Description of boundaries of Urban Services District. See Appendix One
BUDGET
Division of budgets created; functions of budget officer 8.104
Metropolitan county mayor and vice mayor, the
Mayor's veto power; veto of items 5.04
Public library budget 11.1205
Public schools ..... 9.04 et seq.
See: SCHOOLS
BUDGETS AND FINANCIAL MATTERS, THE
Action by council on operating budget 6.06
Additional appropriations 6.10
Allotments of appropriations 6.08
Capital improvements budget 6.13
Fiscal year 6.01
General fund reserve 6.14
Hearings by council 6.05
Impoundment of funds 6.09
Lapse of appropriations 6.12
Post audit 6.15
Preparation of annual operating budget 6.02
Property tax levies 6.07
Review and revision of operating budget by mayor; submission to council; budget as public record; distribution of copies .. 6.04
Scope of the annual operating budget 6.03
BUDGETS AND FINANCIAL MATTERS, THE (Cont'd.)
Transfer of appropriations 6.11
BUSES
Nashville Transit Authority 11.401

— C —

CAPITAL IMPROVEMENTS
Transportation and multimodal infrastructure, department of
Supervision, certification, and approval of payment for certain capital improvement projects 8.403
CERTIFICATES AND CERTIFICATION
Transportation and multimodal infrastructure, department of
Supervision, certification, and approval of payment for certain capital improvement projects 8.403
CIVIL SERVICE
Adoption of classification and general pay plan 12.10
Adoption of rules by civil service commission 12.06
Certain civil service employees transferred to metropolitan department of law 20.12
Civil service commission
Duties 12.03
Number, qualifications, selection and term of members 12.02
Civil service commissions for board of health, board of hospitals and board of education 12.09
Continuance of existing civil service rights of county and city employees 12.12
Director of personnel 12.04
Offenses against civil service and disabilities of civil service employees 12.11
Pay plan for employees of metropolitan police department and fire department 12.13
Personnel policy and administration established 12.01
Positions in classified service and in unclassified service 12.08

CIVIL SERVICE (Cont'd.)
Selection and dismissal of metropolitan employees; limitation on number of positions held 12.05
Substantive content of rules of the commission 12.07
Transition and effective date
Employees and their civil service status continued 20.06
Transitional provisions as to civil service..... 20.16
COLLECTIONS
Department of water and sewerage services
Division of billing and collection 8.505
Division of collections created; duties of collections officer ... 8.107
COMPENSATION
Board of equalization 11.204
Change in salary of metropolitan officers..... 18.05
Civil service
Adoption of classification and general pay plan 12.10
Department of aviation..... 8.703
Department of fire 8.307
Department of law 8.102
Director of finance 8.102
Director of water and sewerage services 8.503
Metropolitan county council 3.02
Metropolitan county mayor and vice mayor, the..... 5.02
Metropolitan employee benefit board..... 13.03
Metropolitan general sessions court 14.20 et seq.
See: COURTS
Metropolitan police department and fire department
Pay plan for employees of 12.13
Metropolitan police, department of. 8.209
Tax assessor..... 8.114
Transition and effective date
Compensation and pension rights of city mayor and city councilmen preserved..... 20.19
Transportation and multimodal infrastructure, department of
Director of transportation and multimodal infrastructure
Qualifications and compensation 8.404
CONTINUATIONS
Metropolitan general sessions court
Continuation of juvenile court; jurisdiction of metropolitan general sessions court limited in juvenile matters .. 14.32
Continuation of office of public defender 14.31
CONTRACTS AND AGREEMENTS
Public schools
Disabilities of board members and council members to make adverse contracts or own school warrants 9.09
Transition and effective date
Property rights, contracts, obligations, causes of action and legal proceedings continued..... 20.03
COUNCIL
Amendment by council resolution.. 19.02
Councilmen
Councilmen disqualified for membership on certain boards and commissions.... 18.13
Created; councilmen-at-large and district councilmen 3.01
No pensions for..... 3.07
Transition and effective date
Compensation and pension rights of city mayor and city councilmen preserved..... 20.19
COUNTY COURT CLERK
Metropolitan finance, department of ..... 8.118 et seq.
COURTS
County judge..... 16.01
County court clerk 16.02
Metropolitan general sessions court
Appeals..... 14.26
Bail in misdemeanor cases..... 14.16
Clerks
How furnished; chief deputy clerks; compensation; bonds 14.20
Powers of deputy clerks..... 14.21
Continuation of juvenile court; jurisdiction of metropolitan general sessions court limited in juvenile matters .. 14.32
Continuation of office of public defender 14.31

COURTS (Cont'd.)
Cost bond or cash deposit required in civil cases; exceptions; schedule of deposits 14.15
Costs and fees 14.22
Court administrator 14.19
Court officers 14.24
Court to take judicial notice of Charter and general and urban services districts 14.27
Created; parts 14.01
Designation of special judge when judge unable to hold court 14.12
Disposition of monies and receipts 14.23
Filling of vacancies in office of judge 14.13
Judges
Compensation; restrictions on practice of law 14.07
Election; term of office 14.05
Jurisdiction, authority and powers generally 14.09
Number; qualifications 14.04
Oath of office 14.06
Presiding judge 14.09A
Retirement benefits; removal from office 14.08
Jurisdiction and authority; justices of the peace divested of certain jurisdiction and authority ... 14.02
Persons authorized to prosecute cases before court 14.18
Probation department or division authorized 14.25
Public defender
Compensation; appointment, qualifications and duties of assistants 14.11
Qualifications; selection; term; duties 14.10
Rules and regulations for bondsmen; rules for release of persons on own recognizance bonds and deposit of driver's license ... 14.17
Rules of court 14.28
Separate dockets to be kept for civil, criminal and traffic cases 14.09B
COURTS (Cont'd.)
Service of process 14.14
Severability of provisions 14.30
Transfer of files, dockets, funds, suits, etc., from former courts 14.29
Trial upon plea of guilty or waiver of indictment, presentment of grand jury investigation and jury trial .. 14.03
Transition and effective date
Transition as to quarterly county court 20.18

— D —

DAMAGES
System of employee benefit plans
Expense for treatment of accidental injury in course of employment to be borne by metropolitan government 13.12
DEATH BENEFITS
System of employee benefit plans .. 13.13
DEPARTMENTS AND OTHER AGENCIES
Metropolitan departments
Aviation, department of ..... 8.701 et seq.
See: AVIATION AND AIRCRAFTS
Fire, department of ..... 8.301 et seq.
See: FIRE PREVENTION AND PROTECTION
Law, department of ..... 8.601 et seq.
See: LAW ENFORCEMENT
Metropolitan finance, department of ..... 8.101 et seq.
See: METROPOLITAN FINANCE, DEPARTMENT OF
Metropolitan police, department of ..... 8.201 et seq.
See: METROPOLITAN POLICE, DEPARTMENT OF
Transportation and multimodal infrastructure, department of ..... 8.401 et seq.
See: TRANSPORTATION AND MULTIMODAL INFRASTRUCTURE, DEPARTMENT OF
Water and sewers, department of. 8.501 et seq.
See: WATER AND SEWERS

DEPARTMENTS AND OTHER AGENCIES (Cont'd.)
Nashville Housing Authority 18.04
Personnel regulations
Hiring and selection of department heads and executive directors..... 3.06.010
Public schools
Board of education ..... 9.02 et seq.
See: SCHOOLS
Transition and effective date
Proceedings before county and city agencies continued..... 20.04
DISABILITIES AND HANDICAPS
Offenses against civil service and disabilities of civil service employees..... 12.11
Public schools
Disabilities of board members and council members to make adverse contracts or own school warrants..... 9.09
DISTRICTS
Description of boundaries of Urban Services District. See Appendix One
Description of thirty-five metropolitan councilmanic districts. See Appendix Two
Redistricting of councilmanic districts 18.06
Status of smaller cities and voluntary surrender of their charters; creation of suburban utility districts..... 18.15
DIVISION OF ACCOUNTS
Created; duties of chief accountant. 8.105
DIVISION OF BUDGETS
Created; functions of budget officer 8.104
DUTIES AND FUNCTIONS
Agricultural extension board 11.802
Board of equalization 11.202
Chief accountant 8.105
Civil service commission..... 12.03
Collections officer 8.107
Functions of constitutional and county officers ..... 16.01 et seq.
See: OFFICERS AND EMPLOYEES
Budget officer..... 8.104
Department of aviation..... 8.702 et seq.
See: AVIATION AND AIRCRAFTS
DUTIES AND FUNCTIONS (Cont'd.)
Department of fire 8.302
Department of law ..... 8.602 et seq.
See: LAW ENFORCEMENT
Department of water and sewerage services 8.502
Director of finance 8.103
Director of hospitals 10.205
Director of parks and recreation.... 11.1004
Director of public works 8.405
Director of water and sewerage services 8.504
Farmers market board 11.702
Fire chief..... 8.303
Metropolitan board of fair commissioners 11.602
Metropolitan board of health 10.103
Metropolitan board of hospitals 10.203
Metropolitan board of parks and recreation 11.1002
Metropolitan employee benefit board..... 13.05
Metropolitan general sessions court 14.20 et seq.
See: COURTS
Metropolitan government to certain state and county officers recognized 16.03
Metropolitan planning commission. 11.504
Metropolitan social services commission 11.1102
Metropolitan traffic and parking commission
Function of commission as to traffic regulation..... 11.904
Metropolitan treasurer..... 8.106
Public health and hospitals
Director of health and chief medical officer
Powers and duties..... 10.106
Public library board 11.1203
Public schools
Board of education 9.04
Transportation and multimodal infrastructure, department of
Director of transportation and multimodal infrastructure
Functions 8.402
Powers and duties..... 8.405

— E —

EDUCATION. See: SCHOOLS

ELECTIONS
Administrative boards and commissions
Election of chairman, vice-chairman and secretary 11.105
Amending charter
Referendum election 19.04
Elections and removal of officers
Applicability of general election laws 15.04
Elections subsequent to vacancies 15.03
Failure to qualify
Tie vote 15.10
Holding the recall election 15.08
Ouster of metropolitan officers 15.05
Procedure in general 15.07
Recall election results
Votes required for election
Runoff election 15.09
Recall of metropolitan officers 15.06
Vote required for election in metropolitan elections; runoff elections 15.02
When general metropolitan elections held; who may vote; qualifications of candidates 15.01
Judges 14.05
Metropolitan county mayor and vice mayor, the 5.05
Transition and effective date
Special metropolitan election and term of office of persons then elected 20.20
ELECTRICITY
Electric power board. See also: Appendix Three
Electric Power Board of Nashville continued as metropolitan agency 11.301
EMPLOYEES. See: OFFICERS AND EMPLOYEES
EQUIPMENT
Transition and effective date
Transfer of records and equipment 20.07

— F —

FAIRS
Metropolitan board of fair commissioners 11.601 et seq.
See: METROPOLITAN BOARD OF FAIR COMMISSIONERS
FARMERS MARKET
Farmers market board
Created; number, qualifications, appointment and term of office of members 11.701
Functions and duties 11.702
FINANCES
System of employee benefit plans
Separate funds; payments from funds; reports 13.11
Transportation and multimodal infrastructure, department of
Supervision, certification, and approval of payment for certain capital improvement projects 8.403
FIRE PREVENTION AND PROTECTION
Department of fire
Appointment of director; filling other vacancies in department 8.304
Created 8.301
Fire chief as director; powers and duties 8.303
Fire prevention 8.305
Function of department 8.302
Qualifications of personnel 8.306
Salaries 8.307
Work week and vacations 8.308
Metropolitan police department and fire department
Pay plan for employees of 12.13
FISCAL YEAR
Provisions re 6.01
FRANCHISES
Public utility franchises
Acquiring property of public utility by condemnation 17.05
General requirements 17.04
Granting ordinances to be ratified at election 17.02
Irrevocable franchises granted only by ordinance 17.01
Limited scope of article 17.08
Recognition of franchises granted by county or city 17.06
Regulation of street railway companies 17.07
Restrictions on all future public utility franchises and reserved powers of metropolitan government 17.03

FUNDS
Bond issues
Debt service funds 7.20
Department of water and sewerage services
Revolving funds 8.507
General fund reserve 6.14
Impoundment of funds 6.09
Public schools ..... 9.11 et seq.
See: SCHOOLS
System of employee benefit plans
Separate funds; payments from funds; reports 13.11

— G —

GENERAL PROVISIONS
Area of metropolitan government .. 1.02
Consolidation of county and city; creation of metropolitan government; name 1.01
Departments of metropolitan government 1.06
Expansion of urban services district 1.04
Functions within general services district and urban services district 1.05
Term limits 1.07
Two services districts and their areas 1.03
GENERAL SERVICES DISTRICT
Functions within 1.05

— H —

HANDICAPS. See: DISABILITIES AND HANDICAPS
HEALTH. See: PUBLIC HEALTH AND HOSPITALS
HEARINGS
Budgets and financial matters, the Hearings by council 6.05
HOSPITALS. See: PUBLIC HEALTH AND HOSPITALS
HOUSING
Nashville Housing Authority 18.04

— I —

IMPROVEMENTS
Transportation and multimodal infrastructure, department of
Supervision, certification and approval of payment for certain capital improvement projects 8.403
INJURIES
System of employee benefit plans
Expense for treatment of accidental injury in course of employment to be borne by metropolitan government 13.12
INTENT OF CHARTER AND SEPARABILITY OF PROVISIONS
Generally 21.01
INVESTMENTS
System of employee benefit plans
Investments committee 13.04

— J —

JUDGES. See: COURTS

— L —

LAW ENFORCEMENT
Department of law
Amending Charter references to state statutes 8.609
Appointment, qualifications, compensation and powers and duties of director of law; designated metropolitan attorney 8.603
Assistant metropolitan attorneys . 8.605
Certain personnel of department not under civil service 8.608
Created 8.601
Deputy director of law 8.604
Director of law and others not to engage in private practice ... 8.606
Employment of special counsel restricted and provided for .. 8.607
Functions 8.602
Metropolitan police, department of . 8.201 et seq.
See: METROPOLITAN POLICE, DEPARTMENT OF
Police protection for parks 11.1005
Sheriff 16.05
Transition and effective date
Certain civil service employees transferred to metropolitan department of law 20.12
Certain members of county highway patrol and of the park police appointed 20.11
Certain metropolitan officers appointed 20.08

LIBRARIES
Public library
Chief librarian 11.1204
Public library board
Powers and duties 11.1203
Term and selection of members 11.1202
Public library budget 11.1205
Public library provided for..... 11.1201

— M —

MAPS, PLATS AND PLANS
Transportation and multimodal infrastructure, department of
Custody of maps and plans 8.406
MAYOR. See: METROPOLITAN COUNTY MAYOR AND VICE MAYOR, THE
MEETINGS
Administrative boards and commissions
Regular and special meetings 11.104
Metropolitan county council, the ... 3.04
Metropolitan planning commission. 11.503
METROPOLITAN BOARD OF FAIR COMMISSIONERS
Created; number, qualifications, appointment and term of office of members..... 11.601
Functions and duties 11.602
METROPOLITAN BOARD OF PARKS AND RECREATION
Director of parks and recreation
Powers and duties 11.1004
Qualifications..... 11.1003
Established; qualifications, term and selection of members 11.1001
Police protection for parks 11.1005
Powers and duties..... 11.1002
METROPOLITAN CLERK
Administrative boards and commissions
By-laws, rules and regulations to be filed with metropolitan clerk..... 11.107
METROPOLITAN COUNTY COUNCIL, THE
Authority and power of the council. 3.06
Created; councilmen-at-large and district councilmen..... 3.01
Legislative authority exercised by ordinance; requirements as to, and form of, ordinances 3.05
METROPOLITAN COUNTY COUNCIL, THE (Cont'd.)
No pensions for councilmen..... 3.07
Quorum; rules of procedure; presiding officer..... 3.03
Regular meetings; adjourned meetings; special meetings 3.04
Terms; compensation; age and residence qualification 3.02
METROPOLITAN COUNTY MAYOR AND VICE MAYOR, THE
Budgets and financial matters, the
Review and revision of operating budget by mayor; submission to council; budget as public record; distribution of copies 6.04
Election of vice mayor; presiding officer of council..... 5.05
Executive and administrative power; chief executive officer . 5.01
Limitation on terms of service 5.06
Mayor's veto power; veto of items in appropriations and budget .. 5.04
Pension for mayor..... 5.07
Power and authority of mayor..... 5.03
Term; qualification; compensation . 5.02
Transition and effective date
Compensation and pension rights of city mayor and city councilmen preserved..... 20.19
METROPOLITAN DEPARTMENTS. See: DEPARTMENTS AND OTHER AGENCIES
METROPOLITAN FINANCE, DEPARTMENT OF
Appointment of deputies of metropolitan trustee and county court clerk..... 8.119
Bond of metropolitan trustee 8.117
Compensation, surety bond, oath of office and assistants of tax assessor 8.114
Competitive bidding for purchases or sales..... 8.111
Created; functions..... 8.101
Date taxes payable; interest and penalty for delinquency 8.120
Director of finance
Powers and duties 8.103
Qualifications, appointment and compensation..... 8.102

METROPOLITAN FINANCE, DEPARTMENT OF (Cont'd.)
Division of accounts created; duties of chief accountant 8.105
Division of budgets created; functions of budget officer 8.104
Division of collections created; duties of collections officer ... 8.107
Division of property tax collections created; county trustee designated metropolitan trustee..... 8.116
Division of public property administration..... 8.112
Division of purchases created; appointment and qualification of purchasing agent 8.108
Division of tax assessment created; metropolitan tax assessor..... 8.113
Division of treasury created; duties of metropolitan treasurer 8.106
Function of division of purchases.[8]. 8.109
Powers and duties of county court clerk 8.118
Powers and duties of purchasing agent..... 8.110
Vacancies in office of tax assessor.. 8.115
METROPOLITAN GOVERNMENT
Area of..... 1.02
Consolidation of county and city ... 1.01
Creation of..... 1.01
Departments of..... 1.06
Name 1.01
METROPOLITAN PLANNING COMMISSION
Department of planning; executive director..... 11.506
Established..... 11.501
Mandatory referrals to planning commission 11.505
Number, qualifications, appointment, terms of office and vacancies of members..... 11.502
Organization; officers; meetings; quorum; business; records..... 11.503
Powers, duties and responsibilities . 11.504
METROPOLITAN POLICE, DEPARTMENT OF
Appointment of director; filling other vacancies in department . 8.204
Chief of police as director; his powers and duties 8.203
Created..... 8.201
METROPOLITAN POLICE, DEPARTMENT OF (Cont'd.)
Pay plan for employees of..... 12.13
Police protection for parks 11.1005
Qualifications of personnel..... 8.208
Responsibility and powers of department 8.202
Salaries 8.209
School crossing guard division 8.206
Special police 8.205
Transition and effective date
Certain members of county highway patrol and of the park police appointed..... 20.11
Volunteer police reserve authorized 8.207
Work week and vacations 8.210
METROPOLITAN SOCIAL SERVICES
Metropolitan social services commission
Created; qualifications, term and selection of members 11.1101
Director of social services 11.1103
Powers and duties 11.1102
METROPOLITAN TRAFFIC AND PARKING COMMISSION
Chief traffic engineer..... 11.903
Commission's review of proposed ordinances 11.905
Created; qualifications, term and selection of members..... 11.901
Function of commission as to traffic regulation 11.904
Management and control of parking meters, garages and other traffic facilities..... 11.907
Powers of commission by private act and ordinance continued... 11.908
Publication of traffic rules and regulations 11.906
Secretary..... 11.902
METROPOLITAN TREASURER
Division of treasury created; duties of metropolitan treasurer 8.106
METROPOLITAN TRUSTEE
Appointment of deputies of 8.119
MINORS
Metropolitan general sessions court
Continuation of juvenile court; jurisdiction of metropolitan general sessions court limited in juvenile matters .. 14.32

MISCELLANOUS PROVISIONS
Authority to deal with state and federal agencies as to specific governmental services..... 18.17
Authorization to council with respect to certain special appropriations..... 18.11
Board of zoning appeals..... 18.03
Change in salary of metropolitan officers..... 18.05
Councilmen disqualified for membership on certain boards and commissions..... 18.13
County executive committees for political parties..... 18.16
Enactment, revisions, modification or changes of zoning regulations 18.02
Federal, state and other aid..... 18.09
Fidelity bonds..... 18.14
Metropolitan agencies authorized to compel attendance of witnesses and production of documents 18.10
Metropolitan clerk 18.01
Nashville Housing Authority..... 18.04
No appropriation authorized from budget of general services district to finance certain deficits..... 18.12
Redistricting of councilmanic districts 18.06
Regulation and sale of alcoholic beverages not affected by Charter..... 18.08
Status of smaller cities and voluntary surrender of their charters; creation of suburban utility districts..... 18.15
Titles and subtitles not part of Charter..... 18.07
MISDEMEANORS
Metropolitan general sessions court
Bail in misdemeanor cases..... 14.16

— N —

NASHVILLE TRANSIT AUTHORITY
Nashville Transit Authority continued as metropolitan agency 11.401

— O —

OATHS OF OFFICE
Judges..... 14.06
Tax assessor..... 8.114
OFFENSES
Metropolitan general sessions court 14.01 et seq.
See: COURTS
Offenses against civil service and disabilities of civil service employees..... 12.11
OFFICERS AND EMPLOYEES
Administrative boards and commissions
Employment of personnel 11.108
Assistant metropolitan attorneys ... 8.605
Change in salary of metropolitan officers..... 18.05
Chief librarian 11.1204
Chief traffic engineer..... 11.903
Civil service..... 12.01 et seq.
See: CIVIL SERVICE
Department of law
Certain personnel of department not under civil service 8.608
Director of law and others not to engage in private practice... 8.606
Employment of special counsel restricted and provided for.. 8.607
Department of planning; executive director..... 11.506
Deputy director of law 8.604
Director of aviation ..... 8.703 et seq.
See: AVIATION AND AIRCRAFTS
Director of department of fire 8.304
Director of health and chief medical officer ..... 10.105 et seq.
See: PUBLIC HEALTH AND HOSPITALS
Director of personnel..... 12.04
Director of social services..... 11.1103
Director of transportation and multimodal infrastructure ..... 8.404 et seq.
See: TRANSPORTATION AND MULTIMODAL INFRASTRUCTURE, DEPARTMENT OF
Director of water and sewerage services ..... 8.503 et seq.
See: WATER AND SEWERS
Elections and removal of officers... 15.01 et seq.
See: ELECTIONS

OFFICERS AND EMPLOYEES (Cont'd.)
Functions of constitutional and county officers
County judge 16.01
County court clerk..... 16.02
Duties of metropolitan government to certain state and county officers recognized..... 16.03
Sheriff..... 16.05
Metropolitan clerk 18.01
Metropolitan general sessions court 14.01 et seq.
See: COURTS
Metropolitan planning commission. 11.503
Public schools..... 9.01 et seq.
See: SCHOOLS
System of employee benefit plans
Adoption 13.01
Benefit increase plan 13.09.1
Continuing rights under retirement plans of former City of Nashville or former County of Davidson 13.09
Death benefits 13.13
Eligibility of officers and employees of metropolitan government..... 13.07
Exclusion of certain persons..... 13.08
Expense for treatment of accidental injury in course of employment to be borne by metropolitan government 13.12
Investments committee 13.04
Metropolitan employee benefit board
Composition and selection of board; terms and qualifications of members 13.03
Created..... 13.02
Duties of metropolitan employee benefit board .. 13.05
Retirement plans to be actuarially sound 13.10
Separate funds; payments from funds; reports..... 13.11
Study and formulating committee; preparation, consideration and adoption of plan for employee benefits; subsequent committees provided for.... 13.06

OFFICERS AND EMPLOYEES (Cont'd.)
Transition and effective date
Employees and their civil service status continued 20.06
Transitional provisions as to employee benefits 20.17

ORDINANCES AND RESOLUTIONS
Amending charter
Amendment by council resolution..... 19.02
Metropolitan traffic and parking commission
Commission's review of proposed ordinances..... 11.905
Public utility franchises
Granting ordinances to be ratified at election 17.02
Irrevocable franchises granted only by ordinance..... 17.01
Transition and effective date
Certain ordinances and resolutions continued..... 20.01

— P —

PARKING
Metropolitan traffic and parking commission ..... 11.901 et seq.
See: METROPOLITAN TRAFFIC AND PARKING COMMISSION

PARKS AND RECREATION
Metropolitan board of parks and recreation ..... 11.1001 et seq.
See: METROPOLITAN BOARD OF PARKS AND RECREATION

PENSIONS
Judges..... 14.08
Metropolitan board of health..... 10.109
Metropolitan board of hospitals 10.207
Metropolitan county mayor and vice mayor, the..... 5.07
Public schools..... 9.06 et seq.
See: SCHOOLS
System of employee benefit plans .. 13.09 et seq.
See: OFFICERS AND EMPLOYEES

PENSIONS (Cont'd.)
Transition and effective date
Compensation and pension rights of city mayor and city councilmen preserved..... 20.19
PETITIONS
Amending charter
Amendment by petition..... 19.03
PLANNING AND DEVELOPMENT
Metropolitan planning commission. 11.501 et seq.
See: METROPOLITAN PLANNING COMMISSION
Transportation and multimodal infrastructure, department of
Custody of maps and plans 8.406
POLITICS
County executive committees for political parties..... 18.16
POWERS
Board of equalization 11.202
Chief of police 8.203
Department of aviation..... 8.704
Department of law 8.603
Director of finance 8.103
Director of hospitals 10.205
Director of parks and recreation.... 11.1004
Director of water and sewerage services 8.504
Fire chief..... 8.303
General powers 2.02
Metropolitan board of parks and recreation 11.1002
Metropolitan county mayor and vice mayor, the..... 5.01
Metropolitan general sessions court 14.20 et seq.
See: COURTS
Metropolitan planning commission. 11.504
Metropolitan police, department of. 8.202
Metropolitan social services commission 11.1102
Metropolitan traffic and parking commission
Powers of commission by private act and ordinance continued 11.908
Power and authority of mayor..... 5.03
Public health and hospitals
Director of health and chief medical officer
Powers and duties 10.106
Public library board 11.1203
Public schools
Board of education 9.03
POWERS (Cont'd.)
Specific powers 2.01
Transportation and multimodal infrastructure, department of
Director of transportation and multimodal infrastructure
Powers and duties 8.405
PROPERTY
Division of property tax collections created; county trustee designated metropolitan trustee..... 8.116
Division of public property administration..... 8.112
Public schools
Acquisition and sale of property . 9.14
Public utility franchises
Acquiring property of public utility by condemnation..... 17.05
Transition and effective date
Property rights, contracts, obligations, causes of action and legal proceedings continued..... 20.03
PUBLIC HEALTH AND HOSPITALS
Civil service commissions for board of health, board of hospitals and board of education..... 12.09
Director of health and chief medical officer
Appointment and qualifications.. 10.105
Powers and duties 10.106
Public health
Budget of metropolitan board of health..... 10.108
Chief medical director of health
Appointment and qualifications..... 10.105
Powers and duties 10.106
Civil service medical examiner; civil service examinations .. 10.110
Metropolitan board of health
Created..... 10.101
Duties..... 10.104
Functions 10.103
Qualifications, term and selection of members..... 10.102
Pension and retirement rights under former county plans .. 10.109
Personnel rules and regulations of the board of health..... 10.107

PUBLIC HEALTH AND HOSPITALS (Cont'd.)
Public hospitals
Director of hospitals
Appointment and qualifications 10.204
Powers and duties 10.205
Metropolitan board of hospitals
Created 10.201
Functions 10.203
Qualifications, term and selection of members 10.202
Pension and retirement rights under former city or county plans 10.207
Personnel rules and regulations of the board of hospitals 10.206
PUBLIC LIBRARY. See: LIBRARIES
PUBLIC WORKS
Transition and effective date
Director and assistant director of department of public works. 20.09
PURCHASES AND PURCHASING
Metropolitan finance, department of ..... 8.108 et seq.

— Q —

QUALIFICATIONS
Administrative boards and commissions
Qualifications of members 11.102
Agricultural extension board 11.801
Board of equalization 11.201
Civil service commission 12.02
Department of aviation 8.703
Department of fire 8.306
Department of law 8.603
Director of finance 8.102
Director of hospitals 10.204
Director of parks and recreation 11.1003
Director of water and sewerage services 8.503
Farmers market board 11.701
Metropolitan board of fair commissioners 11.601
Metropolitan board of health 10.102
Metropolitan board of hospitals 10.202
Metropolitan board of parks and recreation 11.1001
Metropolitan employee benefit board 13.03
QUALIFICATIONS (Cont'd.)
Metropolitan general sessions court 14.20 et seq.
See: COURTS
Metropolitan planning commission. 11.502
Metropolitan police, department of. 8.208
Metropolitan social services commission 11.1101
Metropolitan traffic and parking commission 11.901
Public health and hospitals
Director of health and chief medical officer
Appointment and qualifications 10.105
Transportation and multimodal infrastructure, department of
Director of transportation and multimodal infrastructure
Qualifications and compensation 8.404

— R —

RAILWAYS AND RAILROADS
Public utility franchises
Regulation of street railway companies 17.07
RECORDS AND REPORTS
Budget as public record 6.04
Metropolitan planning commission. 11.503
System of employee benefit plans
Separate funds; payments from funds; reports 13.11
Transition and effective date
Transfer of records and equipment 20.07
REPORTS. See: RECORDS AND REPORTS
RESIDENTIAL REQUIREMENTS
Metropolitan county council 3.02
RESOLUTIONS. See: ORDINANCES AND RESOLUTIONS
RETIREMENT. See: PENSIONS

— S —

SALARIES. See: COMPENSATION
SCHOOL CROSSING GUARD DIVISION
Provisions re 8.206
SCHOOLS
Civil service commissions for board of health, board of hospitals and board of

education..... 12.09
Public schools
Acquisition and sale of property . 9.14
Benefit increase plan 9.06.1
Board of education
Duties; referendum as to school budget 9.04
Employment of director of schools..... 9.05
Powers 9.03
Term and selection of members 9.02
Civil service as to teachers and other educational employees 9.10
Disabilities of board members and council members to make adverse contracts or own school warrants..... 9.09
No diversion of funds..... 9.11
Pension and retirement plan for metropolitan teachers; voluntary transfer thereunder of city and county teachers 9.07
Pension rights of educational employees of county and city protected..... 9.06
Public school system established 9.01
Tenure rights of county and city teachers protected 9.08
Transfer of school funds within school budget..... 9.12
Transfers to school fund from general funds; borrowing money 9.13
School crossing guard division..... 8.206
Transition and effective date
Transitional provisions as to public schools 20.14
SPECIAL POLICE
Provisions re 8.205
STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Transition and effective date
Division of public roads and director thereof 20.10

— T —

TAXATION
Bond issues ..... 7.04 et seq.
See: BOND ISSUES
TAXATION (Cont'd.)
Division of property tax collections created; county trustee designated metropolitan trustee..... 8.116
Metropolitan finance, department of ..... 8.113 et seq.
Property tax levies 6.07
TERMS OF OFFICE
Administrative boards and commissions
Holding over of member after expiration of term..... 11.101.1
Agricultural extension board 11.801
Civil service commission..... 12.02
Farmers market board 11.701
Metropolitan board of fair commissioners 11.601
Metropolitan board of health 10.102
Metropolitan board of hospitals 10.202
Metropolitan board of parks and recreation 11.1001
Metropolitan county council 3.02
Metropolitan county mayor and vice mayor, the..... 5.02, 5.06
Metropolitan employee benefit board..... 13.03
Metropolitan general sessions court 14.20 et seq.
See: COURTS
Metropolitan planning commission. 11.502
Metropolitan social services commission 11.1101
Metropolitan traffic and parking commission 11.901
Public library board 11.1202
Public schools
Board of education 9.02
Transition and effective date
Special metropolitan election and term of office of persons then elected 20.20
Urban council, the..... 4.011
TRAFFIC AND MOTOR VEHICLES
Metropolitan traffic and parking commission ..... 11.901 et seq.
See: METROPOLITAN TRAFFIC AND PARKING COMMISSION
Nashville Transit Authority 11.401
TRAINS. See: RAILWAYS AND RAILROADS
TRANSIT SERVICES
Nashville Transit Authority 11.401

TRANSIT SERVICES (Cont'd.)
Transit authority. See: Appendix Four
TRANSITION AND EFFECTIVE DATE
Appointments to administrative boards and commissions; former boards and commissions continued 20.13
Certain civil service employees transferred to metropolitan department of law 20.12
Certain members of county highway patrol and of the park police appointed..... 20.11
Certain metropolitan officers appointed 20.08
Certain ordinances and resolutions continued 20.01
Compensation and pension rights of city mayor and city councilmen preserved 20.19
Director and assistant director of department of public works ... 20.09
Division of public roads and director thereof..... 20.10
Effective date of Charter 20.21
Employees and their civil service status continued 20.06
Proceedings before county and city agencies continued 20.04
Property rights, contracts, obligations, causes of action and legal proceedings continued 20.03
Rules and regulations continued.... 20.05
Special metropolitan election and term of office of persons then elected 20.20
Transfer of records and equipment . 20.07
Transition as to fiscal and related matters 20.15
Transitional provisions as to civil service 20.16
Transitional provisions as to employee benefits 20.17
Transitional provisions as to public schools 20.14
Transition as to quarterly county court 20.18
Zoning regulations continued 20.02
TRANSPORTATION AND MULTIMODAL INFRASTRUCTURE, DEPARTMENT OF
Created..... 8.401
Custody of maps and plans..... 8.406
Director of transportation and multimodal infrastructure
Powers and duties 8.405
Qualifications and compensation 8.404
Functions 8.402
Supervision, certification, and approval of payment for certain capital improvement projects 8.403

— U —

URBAN COUNCIL, THE
Bond issues 7.04
Selection, term and function of the urban council 4.01
URBAN SERVICES DISTRICT
Description of boundaries of Urban Services District. See Appendix One
Expansion of..... 1.04
Functions within 1.05
UTILITIES
Public utility franchises ..... 17.01 et seq.
See: FRANCHISES
Status of smaller cities and voluntary surrender of their charters; creation of suburban utility districts..... 18.15
Water and sewers, department of ... 8.501 et seq.
See: WATER AND SEWERS

— V —

VACANCIES
Board of equalization 11.201
Director of department of fire 8.304
Judge, filling of vacancies in office of 14.13
Metropolitan planning commission. 11.502
VICE MAYOR. See: METROPOLITAN COUNTY MAYOR AND VICE MAYOR, THE
VOLUNTEERS
Volunteer police reserve authorized 8.207

— W —

WARRANTS

WARRANTS (Cont′d.)
Public schools
Disabilities of board members and council members to make adverse contracts or own school warrants 9.09
WATER AND SEWERS
Department of water and sewerage services
Accounting system 8.506
Created 8.501
Director of water and sewerage services
Powers and duties 8.504
Qualifications and compensation 8.503
Division of billing and collection 8.505
Establishment of and changes in rates 8.508
Functions 8.502
Revolving funds 8.507

— Z —

ZONING
Board of zoning appeals..... 18.03
Enactment, revisions, modification or changes of zoning regulations 18.02
Transition and effective date
Zoning regulations continued 20.02

— A —

ABANDONED REFRIGERATORS
Abandoning refrigerators in accessible places 11.28.070
ABANDONMENT
Abandoned driveways..... 13.12.170
Abandoned vehicles..... 12.08.210
Fiber optic communications services, franchises for
Abandonment of right-of-way 6.26.170
Metropolitan Nashville Airport Authority..... 2.60.160
ABATEMENTS
Health department
Nuisances designated
Abatement authority 2.36.100
ACCIDENTS
Horse-drawn carriages 12.54.300
Industrial waste discharges
Discharges to publicly owned treatment works
Prevention of accidental and/or slug discharges..... 15.60.175
Low speed vehicles
Equipment and operation .. 6.73.400
Metropolitan Nashville Airport Authority
Accident reports 2.60.060
Miscellaneous driving rules
Putting glass, nails or other injurious materials on highway
Clearing accident wreckage..... 12.68.150
Other passenger vehicles for hire
Operations; accidents..... 6.74.340
Pedicabs and pedal carriages
Equipment and operation .. 6.75.430
Taxicabs 6.72.290
Wrecker and towing services. 6.80.010 et seq.
See: WRECKER AND TOWING SERVICES
ACCOUNTING
Department of finance..... 2.24.010 et seq.
See: FINANCE
Metropolitan courts
Court costs
ACCOUNTING (Cont'd.)
Payment
Accounting and remittance 2.56.070
Tow-in lots
Accounting for funds and property received 12.72.070
ADDRESSES
Registration of convicts
Change of address
Notification requirements 1.20.020
ADMINISTRATION
Boards and commissions, general
Meetings of boards and commissions..... 2.68.010 et seq.
See: BOARDS, COMMITTEES, AND COMMISSIONS
Organization and operation of boards and commissions..... 2.64.010 et seq.
See: BOARDS, COMMITTEES, AND COMMISSIONS
Boards
Board of fair commissioners..... 2.78.010
See: FAIRS
Board of fire and building code appeals..... 2.80.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Board of mechanical, plumbing, and electrical examiners and appeals ..... 2.76.010 et seq.
See: BOARD OF MECHANICAL, PLUMBING, AND ELECTRICAL EXAMINERS AND APPEALS
Board of property standards and appeals. 2.88.010 et seq.
See: PROPERTY
Metropolitan safety advisory board..... 2.96.010 et seq.
See: SAFETY

ADMINISTRATION (Cont'd.)
Metropolitan transportation licensing commission . 2.100.010 et seq.
See: TRANSPORTATION
Urban forester ..... 2.104.010 et seq.
See: FORESTRY
Bullying prevention ..... 2.232.010 et seq.
See: BULLYING PREVENTION
Commissions
Auditorium commission ... 2.116.010 et seq.
See: AUDITORIUM COMMISSION
Charter revision commission..... 2.120.010 et seq.
See: CHARTER REVISION COMMISSION
Greenway and open space commission..... 2.154.010 et seq.
See: GREENWAY AND OPEN SPACE COMMISSION
Historical commission..... 2.128.010 et seq.
See: HISTORICAL COMMISSION
Metropolitan action commission..... 2.108.010 et seq.
See: METROPOLITAN ACTION COMMISSION
Metropolitan housing fund commission..... 2.149.010
See: METROPOLITAN HOUSING FUND COMMISSION
Metropolitan human relations commission . 2.132.010 et seq.
See: METROPOLITAN HUMAN RELATIONS COMMISSION
Metropolitan Nashville Arts Commission ..... 2.112.010 et seq.
See: METROPOLITAN NASHVILLE ARTS COMMISSION
ADMINISTRATION (Cont'd.)
Metropolitan social services commission.. 2.144.010 et seq.
See: METROPOLITAN SOCIAL SERVICES COMMISSION
Planning commission..... 2.136.010 et seq.
See: PLANNING COMMISSION
Public records commission 2.140.010 et seq.
See: PUBLIC RECORDS COMMISSION
Tourism and convention commission..... 2.148.010 et seq.
See: TOURISM AND CONVENTION COMMISSION
Council, offices, officers, and departments
Department of codes administration 2.20.010
See: BUILDINGS AND CONSTRUCTION
Department of emergency communications ..... 2.30.010 et seq.
See: EMERGENCY COMMUNICATIONS, DEPARTMENT OF
Department of finance ..... 2.24.010 et seq.
See: FINANCE
Department of general services..... 2.32.010 et seq.
See: GENERAL SERVICES
Department of law..... 2.40.010 et seq.
See: LAW, DEPARTMENT OF
Department of public works..... 2.48.010 et seq.
See: PUBLIC WORKS
Department of water and sewer services ..... 2.52.010 et seq.
See: WATER, SEWERS AND OTHER PUBLIC SERVICES
Fire department..... 2.28.010 et seq.
See: FIRE DEPARTMENT

ADMINISTRATION (Cont'd.)
Health department ..... 2.36.010 et seq.
See: HEALTH DEPARTMENT
Historic zoning commission staff..... 2.130.010 et seq.
See: HISTORIC ZONING COMMISSION STAFF
Homeless services, office of..... 2.63.010 et seq.
See: HOMELESS SERVICES, OFFICE OF
Mayor ..... 2.08.010 et seq.
See: MAYOR
Mayor's office of film and special events..... 2.62.010 et seq.
See: MAYOR
Medical examiner's office.. 2.38.010 et seq.
See: MEDICAL EXAMINER
Metropolitan animal care and control commission..... 2.114.010 et seq.
See: METROPOLITAN ANIMAL CARE AND CONTROL COMMISSION
Metropolitan council ..... 2.04.010 et seq.
See: METROPOLITAN COUNCIL
Metropolitan courts..... 2.56.010 et seq.
See: COURTS
Metropolitan Nashville Airport Authority ..... 2.60.010 et seq.
See: AVIATION AND AIRCRAFT
Metropolitan trustee ..... 2.12.010 et seq.
See: METROPOLITAN TRUSTEE
Office of emergency management..... 2.10.010 et seq.
See: EMERGENCY MANAGEMENT
Office of family safety..... 2.61.010 et seq.
See: OFFICE OF FAMILY SAFETY
Police department ..... 2.44.010 et seq.
See: POLICE DEPARTMENT

ADMINISTRATION (Cont'd.)
Public defender..... 2.16.010 et seq.
See: PUBLIC DEFENDER
Other agencies and bureaus
Community education commission..... 2.160.010 et seq.
See: COMMUNITY EDUCATION COMMISSION
Emergency communications district..... 2.156.010 et seq.
See: EMERGENCY COMMUNICATIONS DISTRICT
Housing and home finance agency requirements.. 2.172.010 et seq.
See: HOUSING AND HOME FINANCE
Metro beautification and environment commission..... 2.152.010 et seq.
See: METRO BEAUTIFICATION AND ENVIRONMENT COMMISSION
Metropolitan highway and transportation safety coordinating council.. 2.168.010 et seq.
See: METROPOLITAN HIGHWAY AND TRANSPORTATION SAFETY COORDINATING COUNCIL
Metropolitan Nashville General Hospital..... 2.164.010 et seq.
See: METROPOLITAN NASHVILLE GENERAL HOSPITAL
Other programs and policies
Adopt-A-Street program... 2.198.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS

ADMINISTRATION (Cont'd.)
Affordable and workforce housing incentive grants ..... 2.213.010 et seq.
See: AFFORDABLE AND WORKFORCE HOUSING INCENTIVE GRANTS
Community garden grant program ..... 2.224.010 et seq.
See: COMMUNITY GARDEN GRANT PROGRAM
Compliance with Metropolitan Code.... 2.206.010 et seq.
See: BOARDS, COMMITTEES, AND COMMISSIONS
Control of excessive vegetation ..... 10.28.010 et seq.
See: VEGETATION
Economic and community development incentive program ..... 2.210.010 et seq.
See: DEVELOPMENT
Effective communication with individuals with disabilities in metropolitan government programs and services ..... 2.214.010 et seq.
See: PROGRAMS AND POLICIES
Electronic formatting and online posting of reports ..... 2.190.010 et seq.
See: ELECTRONIC FORMATTING AND ONLINE POSTING OF REPORTS
Equipment inspection policy..... 2.202.010 et seq.
See: EQUIPMENT
Lobbyist registration and disclosure..... 2.196.010 et seq.
See: LOBBYISTS

ADMINISTRATION (Cont'd.)
Metropolitan employee's consolidated charities program ..... 2.218.010 et seq.
See: OFFICERS AND EMPLOYEES
Report and document filing policy ..... 2.188.010 et seq.
See: PROGRAMS AND POLICIES
Small business economic development incentive grants..... 2.212.010 et seq.
Standards of conduct, disclosure of interests, and enforcement..... 2.222.010 et seq.
See: OFFICERS AND EMPLOYEES
Workforce development program ..... 2.211.010 et seq.
See: WORKFORCE DEVELOPMENT PROGRAM
Procurement code ..... 4.04.010 et seq.
See: PROCUREMENT CODE
Sexual harassment awareness and prevention training.. 2.230.010 et seq.
SEXUAL HARASSMENT AWARENESS AND PREVENTION TRAINING
Tree replacement and protection on certain metro properties..... 2.226.010 et seq.
See: TREE REPLACEMENT AND PROTECTION ON CERTAIN METRO PROPERTIES
ADULT ENTERTAINMENT OVERLAY DISTRICT
Zoning regulations ..... 17.36.250 et seq.
See: ZONING (Title 17)
ADVERTISEMENTS AND ADVERTISING
Advertising signs and other advertising methods
Circulars or handbills
Distribution permitted when 6.04.050
Conflict of provisions..... 6.04.060

ADVERTISEMENTS AND ADVERTISING (Cont'd.)
- Consent of property owner and occupant required when 6.04.040
- Exemptions from certain provisions 6.04.030
- Loudspeakers and noisy instruments prohibited
  - Exceptions 6.04.090
- Metal signs on street markers permitted when 6.04.080
- Prohibited on posts and poles..... 6.04.010
  - Enforcement 6.04.035
  - Exemptions 6.04.030
- Prohibited within public right-of-way and public property 6.04.020
  - Enforcement 6.04.035
  - Exemptions 6.04.030
- Removing or defacing lawful advertising prohibited 6.04.070
- Unauthorized advertisement and redistribution 6.04.100

Fair employment and housing practices
- Employment advertisements, discrimination prohibited 11.20.070

Low speed vehicles
- Equipment and operation
  - Vehicle; advertising on .. 6.73.350

Metropolitan council
- Advertisement and notice concerning rezone hearings or urban renewal projects 2.04.040

Metropolitan Nashville Airport Authority..... 2.60.170

Parks, recreational facilities and cemeteries
- Unlawful activities
  - Advertising and sponsorship on park property..... 13.24.390

Pedicabs and pedal carriages
- Equipment and operation
  - Vehicle; advertising on .. 6.75.380

ADVERTISEMENTS AND ADVERTISING (Cont'd.)
- Taxicabs
  - Advertising on vehicles.... 6.72.420

AFFORDABLE AND WORKFORCE HOUSING INCENTIVE GRANTS
- Administration of grant program..... 2.213.050
- Annual certification 2.213.060
- Cap on total amount of grant awards 2.213.070
- Definitions 2.213.010
- Grants subject to funding availability 2.213.090
- Incentive grants for new units 2.213.020
- Incentive grants for the optional conversion of existing rental units 2.213.040
- Noncompliance 2.213.080
- Standards for occupancy and construction of affordable and/or workforce housing 2.213.030
- Sunset provision 2.213.100

AGENCIES. See: DEPARTMENT AND OTHER AGENCIES

AGREEMENTS. See: CONTRACTS AND AGREEMENTS

AIR CONDITIONING AND REFRIGERATION
- General regulations ..... 15.56.010 et seq.
  - See: WATER, SEWERS AND OTHER PUBLIC SERVICES

AIR POLLUTION
- Air pollution control
  - Administration and enforcement
    - Board
      - Consideration of facts and circumstances.... 10.56.100
      - Powers and duties 10.56.090
    - Complaint notice
      - Hearings procedure ... 10.56.120
    - Construction permits 10.56.020
    - Emergency measures
      - Hearings procedure ... 10.56.140
    - Exemptions 10.56.050

AIR POLLUTION (Cont'd.)
Nuisance declared
Injunctive relief..... 10.56.150
Operating permit..... 10.56.040
Permit and annual emission fees..... 10.56.080
Rules and regulations
Hearings procedure... 10.56.110
Suspension or revocation of permit..... 10.56.070
Transferability of permit 10.56.060
Variances
Hearings procedure... 10.56.130
Definitions..... 10.56.010
Standards for operation
Ambient air quality standards..... 10.56.160
Controlling wind-borne materials..... 10.56.190
Emission of gases, vapors or objectionable odors 10.56.170
Fuel-burning equipment. 10.56.220
Hazardous air pollutants 10.56.210
Incinerators..... 10.56.230
Internal combustion engines..... 10.56.240
Laundry operations
Dryer and vent pipe requirements..... 10.56.180
Measurement and reporting of emissions..... 10.56.290
Open burning..... 10.56.250
Process emissions..... 10.56.260
Sale, use or consumption of solid and liquid fuels..... 10.56.200
Start-ups, shutdowns and malfunctions... 10.56.280
Testing procedures..... 10.56.300
Visible emissions..... 10.56.270
Aviation
Parks, recreational facilities and cemeteries..... 13.24.400
AIRPORT OVERLAY DISTRICT
Zoning regulations..... 17.36.230 et seq.
See: ZONING (Title 17)

ALARMS
Burglar and fire alarm systems
Automatic dialing devices . 10.60.060
Definitions..... 10.60.010
Disposition of fees..... 10.60.040
Employee training
Address identification
Automatic alarm shutoff 10.60.050
Enforcement..... 10.60.090
Exemptions from provisions..... 10.60.030
False alarms
Required reports of corrective action and disconnection.. 10.60.070
Registration required
Permit fees..... 10.60.020
Violation and penalty..... 10.60.100
Offenses by or against public officers and government
Giving false information
False alarms..... 11.04.080
Interfering with alarm or communication systems..... 11.04.070

ALCOHOL AND ALCOHOLIC BEVERAGES
After hours establishments
Definitions..... 6.06.010
Department of codes administration
Powers and duties..... 6.06.050
Establishment permit
Appeals for denial, revocation
Hearings..... 6.06.100
Issuance conditions..... 6.06.040
Required..... 6.06.020
Requirements, conditions..... 6.06.030
Revocation..... 6.06.090
Mandatory police checks.. 6.06.110
Prohibited acts, conduct and persons..... 6.06.070
Registration
Required..... 6.06.020
Security provided by permit holders..... 6.06.080
Severability..... 6.06.120

ALCOHOL AND ALCOHOLIC BEVERAGES (Cont'd.)
- Alcohol Diversion and Preventive Treatment (ADAPT) Program
  - supervisory authority 2.56.300
- Beer and alcoholic beverages of less than eight percent
  - Definitions 7.08.010
  - General regulations
    - Hotels and motels 7.08.240
    - Limitations on purchases 7.08.180
    - Permitted activities 7.08.160
    - Resale prohibited when . 7.08.210
    - Restrictions on sales by wholesalers 7.08.170
    - Retail purchases and deliveries
      - Permit location only .. 7.08.200
    - Retail sales and storage
      - Permit location only .. 7.08.190
    - Return of beer permit upon termination of business 7.08.220
    - Valid permit
      - Limitations 7.08.230
  - Wholesale and retail permits
    - Application
      - Requirements and conditions 7.08.040
      - Submittal to police department before approval .. 7.08.050
    - Caterer's permit
      - Issuance and notice requirements
        - Location restrictions 7.08.105
    - Conditions of permits ... 7.08.070
    - Draft beer defined
      - Off-premises consumption sales 7.08.120
    - Fees
      - Application, renewal and change in management 7.08.060
    - Location restrictions
      - Issuance of permit after revocation .. 7.08.090

ALCOHOL AND ALCOHOLIC BEVERAGES (Cont'd.)
- Permit to state location where sale is authorized 7.08.080
- Prohibited acts
  - By permit holders, agents or employees 7.08.140
  - Generally 7.08.130
- Required 7.08.020
- Retailer on-sale beer permit
  - Issuance requirements 7.08.100
- Suspension and revocation of permit
  - Authority 7.08.110
  - Civil penalty options .. 7.08.150
- Types of permits 7.08.030
- Wholesalers and manufacturers
  - More than one place of business
    - Permitted when 7.20.010
  - Suspension and revocation of permit
    - Authority 7.20.020

Beer permit board
- Election of officers
  - Term 7.04.030
- Established 7.04.010
- Meetings
  - Quorum required
    - Minutes and transcript 7.04.040
- Membership
  - Terms 7.04.020
- Metropolitan beer permit inspectors
  - Authority 7.04.060
- Powers and duties 7.04.050

Driving under the influence of intoxicating liquor or drugs 12.68.190

Financial policies
- Litter fee for individuals convicted of DUI 5.04.090

Horse-drawn carriage, alcohol in 12.54.210

ALCOHOL AND ALCOHOLIC BEVERAGES (Cont'd.)
Low speed vehicles
Driver permit
Alcohol in a LSV 6.73.220
Metropolitan courts ..... 2.56.510 et seq.
See: COURTS
Metropolitan Nashville Airport Authority..... 2.60.190
Parks, recreational facilities and cemeteries 13.24.090
Pedestrians under the influence of alcohol or drugs..... 12.52.140
Pedicabs and pedal carriages
Driver permit
Alcohol in a pedicab or pedal carriage 6.75.240
Privilege taxes
Business tax
Alcoholic beverage retail sales
Consumption on premises..... 5.16.050
Regulations
Certificate of compliance
Application
Publication of notice.. 7.16.090
Effect of conviction of violating alcoholic beverage laws 7.16.150
Effect of felony conviction involving moral turpitude 7.16.190
Expiration of permit..... 7.16.160
Fee payment restrictions 7.16.130
Issuance authority..... 7.16.140
Location restrictions 7.16.110
Nontransferable
Temporary agents authorized when . 7.16.170
Premises removal, relocation, transfer conditions..... 7.16.180
Prohibited for premises outside lawful area . 7.16.100
General regulations
Definitions 7.16.010
Enforcement of chapter provisions
Authority 7.16.080
ALCOHOL AND ALCOHOLIC BEVERAGES (Cont'd.)
Interpretation and application of chapter provisions.. 7.16.020
Locations where sales permitted..... 7.16.030
Mayor
Powers and duties 7.16.070
Premises
Ground floor, entrances and exits 7.16.050
Visibility of interior .. 7.16.060
Sales beyond permitted limits prohibited when 7.16.040
Urban services district
Privilege taxes
Alcoholic beverage retail sales
Consumption on premises..... 5.36.060
Use restrictions
Alcoholic beverages in open containers..... 7.24.040
Minors prohibited when
Exceptions 7.24.020
Prohibited acts or conduct
Enforcement authority .. 7.24.030
Retail liquor stores
Maximum number allowed 7.24.010
Wholesalers
Applicability of chapter.... 7.12.070
Collection of fees..... 7.12.030
Definitions..... 7.12.010
Disposition of fees
Payment agreements
Authorization..... 7.12.060
Purpose
Fund credited..... 7.12.050
Fee imposed
Rate
How measured..... 7.12.020
Remittance of fees
Reports required
Penalty
Reimbursement 7.12.040
ALLEYS
Alley parking 12.40.060
Defined 12.04.010

ALLEYS (Cont'd.)
General regulations ..... 13.08.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
One-way streets and alleys ... 12.28.010 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Speed restrictions 12.20.060
Vehicles emerging from alley, driveway or building 12.24.050
AMBULANCES
Ambulance operation rules and regulations 2.28.040
Division of emergency ambulance and rescue service 2.28.030
Obedience to orders of emergency ambulance and rescue service personnel..... 2.28.050
AMUSEMENTS AND ENTERTAINERS
Films and live entertainers
Safety rules and conditions 6.24.010
Noise and amplified sound
Excessive noise
Outdoor entertainment and mass gatherings..... 9.20.030
ANIMALS AND FOWL
Animal baiting or fighting prohibited 8.12.040
Animal control regulations
Animal offender school.... 8.12.090
Generally
Animals exposed to rabies
Confinement required. 8.20.030
Care of confined animals..... 8.20.040
Cattle quarters
Health regulations 8.20.110
Fowl at large prohibited
Impoundment..... 8.20.060
Impounded animals
Redemption
Sale 8.20.080
Impounded fowl
Redemption
Sale 8.20.070
ANIMALS AND FOWL (Cont'd.)
Keeping livestock
Permit required
Regulation by department of health 8.20.100
Keeping of hogs prohibited 8.20.130
Killing birds and squirrels prohibited 8.20.170
License tag
Removal prohibited... 8.20.010
Moneys collected
Poundmaster's duties . 8.20.090
Running at large of certain animals prohibited 8.20.050
Sale of livestock on streets 8.20.120
Treatment for persons bitten by rabid dog recommended
Expenses paid when .. 8.20.020
Second civil district
Keeping hogs
Permit required when. 8.24.010
Animal riding and persons propelling pushcarts..... 12.08.130
Animals at large..... 8.04.120
Authority for chemical capture 8.12.070
Authority to impound dogs... 8.04.130
Aviation and aircraft
Metropolitan Nashville Airport Authority 2.60.180
Collection and disposition of fees 8.04.050
Companion animal hoarding . 8.12.080
Concealment of dogs..... 8.04.160
Confinement required
Animals suspected of having rabies 8.04.100
Female dogs in heat 8.04.090
Cruelty to animals prohibited 8.12.030
Definitions 8.04.010
Disposition of unclaimed or unlicensed dogs 8.04.150
Dogs
Authority to impound..... 8.04.130
Concealment..... 8.04.160
Confinement required—
Female dogs in heat .. 8.04.090

ANIMALS AND FOWL (Cont'd.)
Disposition of unclaimed or unlicensed dogs 8.04.150
Exemption from chapter—Dogs in transport 8.04.180
Guard dogs 8.04.110
Pen enclosures for dogs 8.12.110
Pet dogs in outdoor dining areas at restaurants ... 8.04.200
Dogs and cats at pet stores
Retail sale of
Definitions 8.30.010
Enforcement 8.30.040
Restrictions 8.30.020
Violations 8.30.030
Exemption from chapter—Dogs in transport 8.04.180
Failure to pay license fee 8.04.080
Guard dogs 8.04.110
Horse-drawn carriages ..... 12.54.010 et seq.
See: HORSE-DRAWN CARRIAGES
Impoundment 8.12.060
Impoundment and fees—Redemption 8.04.140
Inhumane transportation of animals 8.12.050
Interfering with police officers or health department officials unlawful 8.04.170
Keeping of animals that disturb the peace 8.12.010
Keeping of chickens 8.12.020
Law enforcement, retired 2.44.085
License tags 8.04.070
Licenses—Issuance of license—Records 8.04.040
Metropolitan animal care and control commission ..... 2.114.010 et seq.
See: METROPOLITAN ANIMAL CARE AND CONTROL COMMISSION
Outdoor sale or gifting of animals prohibited 8.12.100
Parks, recreational facilities and cemeteries ..... 13.24.120 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS

ANIMALS AND FOWL (Cont'd.)
Pen enclosures for dogs 8.12.110
Pet dogs in outdoor dining areas at restaurants 8.04.200
Pet licenses—Requirements .. 8.04.030
Rabies vaccination requirements 8.04.020
Removal of dead animals
Delivery to board of health 10.70.030
Joint authority 10.70.040
Removal from private property 10.70.020
Removal from public right-of-way 10.70.010
Removal of excrement 8.04.190
Rendering plants
Handling diseased carcasses 6.60.090
Reduction of animal matter 6.60.100
Summons issuance for sanitation, litter control and animal control violations 1.24.020
Vicious dogs
Complaints of violations
Court findings 8.08.060
Definitions 8.08.010
Impoundment
Authorized when
Fees 8.08.040
Court proceedings against owner 8.08.050
Vicious dogs prohibited 8.08.030
Violations; civil infractions; civil penalties 8.04.210
Wildlife
Certificate
Council approval 8.16.050
Renewal 8.16.060
Definitions 8.16.010
Exceptions 8.16.030
Keeping wildlife
Certificate required
Fee 8.16.040
Prohibited when 8.16.020

APPEALS
Board of fire and building code appeals ..... 2.80.010 et seq.
See: BUILDINGS AND CONSTRUCTION

APPEALS (Cont'd.)
Board of property standards and appeals ..... 2.88.010 et seq.
See: PROPERTY
Boards, committees, and commissions
Meetings of boards and commissions
Notice of appeal process 2.68.030
Commercial solicitors
Permit
Appeals for denial or revocation—
Hearings 6.64.160
Control of excessive vegetation ..... 10.28.010 et seq.
See: VEGETATION
Fire department
Orders to remedy dangerous conditions
Appeals 2.28.170
Horse-drawn carriages
Driver's permit
Suspension, revocation, and appeal 12.54.145
Low speed vehicles
Driver permit
Suspension, revocation, and appeal 6.73.180
Metropolitan courts
Court costs
Effect of appeals on payment
Circuit court to collect costs when 2.56.090
Pedicabs and pedal carriages
Driver permit
Suspension, revocation, and appeal 6.75.190
Procurement appeals board... 4.36.070 et seq.
See: PROCUREMENT CODE
Quarrying and mining operations
Abatement notice 10.52.030
Seated sightseeing vehicles... 6.78.180 et seq.
See: SEATED SIGHTSEEING VEHICLES

APPEALS (Cont'd.)
Vehicles and traffic
General regulations, administration and enforcement 12.08.220
APPOINTMENTS
Assistant public defender 2.16.040
Auditorium commission..... 2.116.020
Bicycle and pedestrian advisory commission
Membership—
Appointment, compensation and term of office 2.153.020
Board of fire and building code appeals 2.80.020
Board of property standards and appeals 2.88.020
Charter revision commission . 2.120.030
Community education commission 2.160.020
Department of law
Appointment of employees 2.40.170
Emergency communications district 2.156.020
Employee assistance program 3.64.020
Historical commission 2.128.030
Metro beautification and environment commission 2.152.020
Metropolitan action commission
Appointment and term of chairman and members..... 2.108.020
Metropolitan courts
Division of probation
Administration of the division
Appointment of employees 2.56.100
Metropolitan human relations commission 2.132.030
School crossing guard division 2.44.140
Tourism and convention commission 2.148.020
APPROPRIATIONS
Acceptance of private roads
Appropriation of public funds prior to road acceptance..... 13.10.020

APPROPRIATIONS (Cont'd.)
Financial policies
Appropriations from general fund reserve fund (four percent fund) 5.04.015
Metropolitan highway and transportation safety coordinating council 2.168.050
ARBORISTS
Urban forester
Permitting of arborists 2.104.070
ARENAS
Nashville Arena
Hucksters and peddlers 6.32.04
ARRESTS
Graffiti
Reward for information leading to arrest and conviction of violator. 11.26.055
ART
Metropolitan Nashville Arts Commission..... 2.112.010 et seq.
See: METROPOLITAN NASHVILLE ARTS COMMISSION
Public art financing ..... 5.10.010 et seq.
See: REVENUE AND FINANCE
ASSAULT
Minors, offenses by or against
Assault
Indecent exposure..... 11.28.030
Offenses against the person .. 11.08.010
ASSEMBLIES
Assembling to commit unlawful acts..... 11.12.020
Mass gatherings
Bond required 10.44.020
Crowd control 10.44.120
Definitions..... 10.44.010
Food service plans and establishments..... 10.44.070
Injunctive relief..... 10.44.150
Lighting for facility areas.. 10.44.100
Medical care and facilities. 10.44.140
Overnight camping 10.44.090
Permit required
Application 10.44.030
Refuse storage, collection and disposal 10.44.080
Regulatory personnel 10.44.130
ASSEMBLIES (Cont'd.)
Sewage disposal and facilities 10.44.060
Space requirements..... 10.44.040
Water supply and facilities. 10.44.050
Mayor
No limitation of freedom of speech or peaceful demonstrations 2.08.090
Metropolitan Nashville Airport Authority..... 2.60.240
Parks, recreational facilities and cemeteries 13.24.200
ASSESSMENTS
Gulch Central Business Improvement District
Estimated costs and rate of levy; special assessment procedure. 2.176.080
Metropolitan courts
Court costs ..... 2.56.050 et seq.
See: COURTS
Revenue and finance
Taxes
Privilege taxes
Specific occupations and activities
Victims assistance assessment 5.16.075
Property taxes
Proration of real property tax assessments affected by disaster certified by FEMA..... 5.20.090
Streets, sidewalks and other public ways
Fees, in-lieu contributions and other assessments, estimates or payments 13.02.010
Water, sewers and other public services
Fees, in-lieu contributions and other assessments, estimates or payments 15.02.010
Zoning
Fees, in-lieu contributions and other assessments, estimates or payments 17.04.055

ATTORNEYS
Department of law
Assistant metropolitan attorneys 2.40.020
Control of department
Metropolitan attorney powers and duties
Docket of suits 2.40.010
Public defender ..... 2.16.010 et seq.
See: PUBLIC DEFENDER
AUCTIONS AND AUCTIONEERS
Urban services district regulations
Auctions sales of automobiles or jewelry
Compliance with provisions 6.88.020
Display of application and permit 6.88.070
Exceptions 6.88.030
Permit
Application 6.88.040
Bond required 6.88.050
Issuance, form and fee 6.88.060
Prohibited acts 6.88.090
Purpose 6.88.010
Reading of application and permit 6.88.080
Exceptions to chapter requirements 6.84.090
False statements 6.84.050
Inventory and affidavit 6.84.020
Misrepresentation by auctioneer
Penalty 6.84.070
Prohibited auction hours ... 6.84.040
Prohibited bidding practices 6.84.080
Selling at auction defined .. 6.84.010
Substitution of articles
Penalty 6.84.060
Written description of articles 6.84.030
AUDITORIUM COMMISSION
Created 2.116.010
Membership
Appointment, compensation, term and vacancy filling 2.116.020
Powers and duties 2.116.030
AUDITORIUMS
Municipal auditorium
Hucksters and peddlers .... 6.32.020 et seq.
See: PEDDLERS AND SOLICITORS
AUDITS
Department of finance
Division of metropolitan audit 2.24.300
Procurement code; source selection and contract formation
Right to audit records 4.12.180
AVIATION AND AIRCRAFT
Litter from
Aircraft 10.24.170
Metropolitan Nashville Airport Authority
Abandoning property 2.60.160
Accident reports 2.60.140
Advertising restrictions 2.60.170
Aeronautical operations
Closing the airport Authority 2.60.370
Disabled aircraft 2.60.440
Engine run-up procedures 2.60.410
FAA regulations applicable 2.60.360
Helicopter operations ... 2.60.400
Operation requirements and restrictions 2.60.380
Parking of aircraft 2.60.420
Repair areas and restrictions 2.60.430
Taxiing of aircraft 2.60.390
Animals 2.60.180
Application of chapter provisions 2.60.020
Commercial activity 2.60.050
Contracts and leases
Filing requirements 2.60.060
Definitions 2.60.010
Disorderly conduct, public intoxication, gambling and other nuisances 2.60.190
Emergency conditions 2.60.150
Enforcement authority 2.60.270
Firearms and hunting 2.60.200
Injuring or destroying property 2.60.210
Liability limitations 2.60.040

AVIATION AND AIRCRAFT (Cont'd.)
Loitering 2.60.220
Lost and found articles 2.60.130
Motor vehicles and parking
Motorized equipment operations 2.60.300
Operation of motor vehicles on roadways 2.60.290
Parking of vehicles
Towing authority 2.60.320
Procedure in case of accidents 2.60.330
Repair or cleaning of motor vehicles 2.60.340
Taxicabs, buses and similar services 2.60.310
Traffic regulations applicable 2.60.280
Weight limitations for vehicles 2.60.350
Photography 2.60.230
Picketing and demonstrations 2.60.240
Restricted areas 2.60.110
Roads and walkways 2.60.120
Rules and regulations
Adoption and amendment 2.60.030
Safety and fire prevention
Compliance with safety and fire prevention regulations 2.60.450
Fueling operations 2.60.460
Housekeeping and fire preventative measures 2.60.490
Runway foaming specifications 2.60.480
Spillage of fuels or hazardous substances 2.60.470
Sanitation requirements 2.60.250
Schedule of use charges ... 2.60.090
Soliciting 2.60.260
Storage of property and equipment 2.60.100
Tenants
Construction conditions . 2.60.070
Sign restrictions 2.60.080

AWARDS
Employee award programs ... 3.60.010 et seq.
See: OFFICERS AND EMPLOYEES

— B —

BAD CHECKS. See: CHECKS
BARRICADES
Excavations and obstructions
Barricades required when .. 13.20.090
BATHING AND SWIMMING
Parks, recreational facilities and cemeteries 13.24.100
BATTERY BOXES AND PARTS
Waste management; disposal and placement of 10.20.080
BICYCLE AND PEDESTRIAN ADVISORY COMMISSION
Departmental cooperation and staffing 2.153.050
Duties and purpose 2.153.030
Establishment 2.153.010
Meetings 2.153.040
Membership—Appointment, compensation and term of office 2.153.020
BICYCLES
Application of Title 12 provisions 12.60.020
Bicycle and pedestrian advisory commission .... 2.153.010 et seq.
See: BICYCLE AND PEDESTRIAN ADVISORY COMMISSION
Bicycle lanes 12.60.135
Carrying articles 12.60.150
Clinging to vehicles 12.60.160
Compliance with Title 12 provisions 12.60.010
Defined 12.04.025
Lamps and other required equipment 12.60.120
Method of riding 12.60.050
Number of persons on a bicycle 12.60.080
Obedience to traffic-control devices 12.60.040
Operating more than two abreast 12.60.070

BICYCLES (Cont'd.)
Parent and guardian responsibility concerning violations ... 12.60.170
Parking of bicycles 12.60.140
Pedicabs and pedal carriages
Equipment and operation
Application of code provisions regarding bicycles .. 6.75.530
Riding on right side of roadway
Passing vehicles 12.60.060
Riding on sidewalks 12.60.100
Speed restrictions 12.60.110
Traffic laws applicable
Exceptions 12.60.030
Yield right-of-way required when 12.60.130
Youth helmets 12.60.165
Zoning
Parking, loading and access
Parking and loading requirements
Bicycle parking 17.20.135

BIDS AND BIDDING
Auctions and auctioneers
Urban services district regulations
Prohibited bidding practices 6.84.080
Procurement code ..... 4.04.010 et seq.
See: PROCUREMENT CODE

BILLBOARDS. See: SIGNS AND BILLBOARDS

BILLIARD PARLORS. See: POOLROOMS AND BILLIARD PARLORS

BILLINGS
Department of water and sewer services
Billings and collection manager 2.52.030

BIRDS. See: ANIMALS AND FOWL

BIRTHS
Vital statistics ..... 10.04.010 et seq.
See: VITAL STATISTICS

BOARD OF MECHANICAL, PLUMBING, AND ELECTRICAL EXAMINERS AND APPEALS
Appeals from decisions on gas/mechanical, plumbing, or electrical matters 2.76.100
Appeals—filing requirements 2.76.110
Appointment and qualifications of members and term of office 2.76.020
Compensation and removal of members 2.76.040
Conflicts of interest 2.76.090
Created 2.76.010
Decisions of the board—recordkeeping 2.76.120
Meetings and hearings 2.76.060
Organization and officers 2.76.030
Powers and duties 2.76.080
Quorum 2.76.070
Rules and regulations for conduct of business 2.76.050

BOARDS, COMMITTEES, AND COMMISSIONS
Air pollution control board ... 10.56.090 et seq.
See: AIR POLLUTION
Auditorium commission ..... 2.116.010 et seq.
See: AUDITORIUM COMMISSION
Beer permit board ..... 7.04.010 et seq.
See: ALCOHOL AND ALCOHOLIC BEVERAGES
Bicycle and pedestrian advisory commission .... 2.153.010 et seq.
See: BICYCLE AND PEDESTRIAN ADVISORY COMMISSION
Board of ethical conduct 2.222.040
Board of fair commissioners . 2.78.010
See: FAIRS
Board of fire and building code appeals ..... 2.80.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Board of licensing for adult entertainment and safety 6.54.020

BOARDS, COMMITTEES, AND COMMISSIONS (Cont'd.)
Board of mechanical, plumbing, and electrical examiners and appeals .. 2.76.010 et seq.
See: BOARD OF MECHANICAL, PLUMBING, AND ELECTRICAL EXAMINERS AND APPEALS
Board of property standards and appeals ..... 2.88.010 et seq.
See: PROPERTY
Board of zoning appeals..... 17.40.180 et seq.
See: ZONING (Title 17)
Charter revision commission . 2.120.010 et seq.
See: CHARTER REVISION COMMISSION
Community oversight board
Board staff..... 2.106.040
Creation 2.106.010
Duties of the executive director 2.106.050
Limitations 2.106.080
Membership 2.106.030
Powers and duties of the board 2.106.060
Procedure..... 2.106.070
Purpose..... 2.106.020
Severability..... 2.106.090
Compliance with Metropolitan Code 2.206.010
Control of excessive vegetation..... 10.28.010 et seq.
See: VEGETATION
Employee award programs
Award board..... 3.60.070
Suggestion award board ... 3.60.020
Employees relations board ... 3.56.080
Fair employment and housing practices human relations commission.... 11.20.100
Farmers' market board..... 2.107.010
Historic zoning commission.. 17.40.400 et seq.
See: ZONING (Title 17)
Historic zoning commission staff..... 2.130.020
Historical commission ..... 2.128.010 et seq.
See: HISTORICAL COMMISSION

BOARDS, COMMITTEES, AND COMMISSIONS (Cont'd.)
Meetings of boards and commissions
Notice of appeal process... 2.68.030
Public notification of meetings..... 2.68.020
Regular and special meetings
Location
Open to public..... 2.68.010
Metropolitan action commission ..... 2.108.010 et seq.
See: METROPOLITAN ACTION COMMISSION
Metropolitan human relations commission ..... 2.132.010 et seq.
See: METROPOLITAN HUMAN RELATIONS COMMISSION
Metropolitan Nashville Arts Commission..... 2.112.010 et seq.
See: METROPOLITAN NASHVILLE ARTS COMMISSION
Metropolitan safety advisory board..... 2.96.010 et seq.
See: SAFETY
Metropolitan social services commission ..... 2.144.010 et seq.
See: METROPOLITAN SOCIAL SERVICES COMMISSION
Metropolitan transportation licensing commission ... 2.100.010 et seq.
See: TRANSPORTATION
Nashville entertainment commission ..... 2.147.010 et seq.
See: NASHVILLE ENTERTAINMENT COMMISSION
Nashville sustainability advisory committee ..... 2.155.010 et seq.
See: NASHVILLE SUSTAINABILITY ADVISORY COMMITTEE

BOARDS, COMMITTEES, AND COMMISSIONS (Cont'd.)
Neighborhood revitalization
Vacant property review commission ..... 10.86.010 et seq.
See: NEIGHBORHOODS
Official street map
Board of adjustment 13.04.090
Organization and operation of boards and commissions
Applicability of chapter provisions 2.64.010
Contact information for members of boards and commissions 2.64.055
Election of officers
Certification of organization 2.64.040
Establishment of divisions and other units 2.64.020
Membership demographic reports 2.64.060
Organization and internal management 2.64.050
Rules and regulations for functions and personnel 2.64.030
Term commencement; attendance requirements 2.64.070
Planning commission ..... 2.136.010 et seq.
See: PLANNING COMMISSION
Procurement appeals board ... 4.36.070 et seq.
See: PROCUREMENT CODE
Procurement code
Standards board 4.16.020
Public records commission ... 2.140.010 et seq.
See: PUBLIC RECORDS COMMISSION
Rental inspections
Required registration 16.33.170
Stormwater management committee ..... 15.64.010 et seq.
See: WATER, SEWERS AND OTHER PUBLIC SERVICES
BOARDS, COMMITTEES, AND COMMISSIONS (Cont'd.)
Tourism and convention commission ..... 2.148.010 et seq.
See: TOURISM AND CONVENTION COMMISSION
Urban forester ..... 2.104.010 et seq.
See: FORESTRY
BOATING
Parks, recreational facilities and cemeteries 13.24.110
BONDS
Department of law
Execution of bonds for costs, judgments and other actions 2.40.050
Excavations and obstructions. 13.20.050
Fiber optic communications services, franchises for .. 6.26.200
Fireworks 10.68.030
Licensed weigher 6.76.220
Mass gatherings 10.44.020
Metropolitan trustee, bond for 2.12.010
Plumbing contractors ..... 6.52.140 et seq.
See: PLUMBERS AND PLUMBING
Procurement code ..... 4.20.030 et seq.
See: PROCUREMENT CODE
Septic tank and overflow contractors 6.52.220
Solid fuel sales or hauling 6.68.050
Sprinkler systems for fire protection 15.24.090
Urban services district regulations
Auctions sales of automobiles or jewelry 6.88.050
Weighmaster 6.76.030
BOOKS AND BOOK STORES
Urban services district regulations
Pawnbrokers, secondhand dealers and junk dealers
Book sales 6.100.060
BOOTING SERVICES
Definitions 6.81.005

BOOTING SERVICES (Cont'd.)
Employees
Licensee responsibilities; compliance required .. 6.81.090
Permit required; fee; identification badge... 6.81.080
Equipment and operation
Booting fees 6.81.140
Disposition of revenue..... 6.81.160
Minimum equipment required 6.81.110
Notices at time booting device is installed..... 6.81.130
Operating records..... 6.81.120
Prohibited acts..... 6.81.170
Receipts 6.81.150
Signage
Unpaid parking violations 6.81.180
Vehicle requirements and damages 6.81.100
Hearings
Hearing before suspension, revocation or probation, and after refusal to renew license or permit..... 6.81.200
Hearing for applicant for license..... 6.81.190
License for operation
Applications—Conditions . 6.81.020
Liability insurance required 6.81.040
License
Fees, expiration, transfer and display..... 6.81.060
Issuance and contents ... 6.81.050
Purpose and intent 6.81.010
Required to provide booting service..... 6.81.015
Making false statement—Power not to grant application..... 6.81.030
Payment of fee..... 6.81.070
BOTTLES AND BOTTLE DEALERS
Urban Services District regulations
Pawnbrokers, secondhand dealers and junk dealers
Bottle dealers 6.100.070
BOUNDARIES
First civil district designated . 1.08.010
Gulch Central Business Improvement District
District created—Boundary 2.176.010
Midtown Central Business Improvement District (MBID) 2.179.020
Second civil district designated..... 1.08.020
South Nashville Central Business Improvement District (SONA CBID)
District created, boundary . 2.178.010
BUDGETS
Department of finance..... 2.24.010 et seq.
See: FINANCE
Downtown Central Business Improvement District (Downtown CBID)
Annual budget 2.177.070
Gulch Central Business Improvement District
Annual budget 2.176.070
Mayor
Budget..... 2.08.030
Metropolitan courts
Division of probation
Budget for operation 2.56.130
Metropolitan human relations commission 2.132.080
Midtown Central Business Improvement District (MBID)
Annual budget 2.179.070
Procurement code ..... 4.04.010 et seq.
See: PROCUREMENT CODE
South Nashville Central Business Improvement District (SONA CBID)
Annual budget 2.178.070
Tourism and convention commission 2.148.030
BUFFERS AND BUFFERING
Landscaping, buffering and tree requirements..... 17.24.010 et seq.
See: ZONING (Title 17)
BUGS
Rodents, insects and other pests ..... 10.32.010 et seq.
See: PESTS AND PEST CONTROL

BUILDINGS AND CONSTRUCTION
Administration and enforcement
Annual adjustment of fees . 16.04.177
Emergency health orders, enforcement 16.04.175
Fire zone map
Adopted by reference ... 16.04.180
General requirements
Additional requirements
Authority of director.. 16.04.050
Alternate materials and methods
Authorization by director 16.04.060
Certificate of occupancy
Issuance of electrical releases and temporary certificates..... 16.04.100
Collections
Records..... 16.04.080
Conflicts with other ordinances 16.04.170
Construction standards .. 16.04.130
Intent
Remedial 16.04.010
Interference with director prohibited . 16.04.160
Issuance of permits and notices 16.04.070
Maintenance of buildings required
Owner's responsibility 16.04.030
Noncompliance
Stop work order 16.04.110
Proof of compliance
Test reports 16.04.140
Registration and bond required when..... 16.04.090
Revocation of permits when..... 16.04.120
Right of entry 16.04.040
Scope 16.04.020
Violations
Penalties
Revocation of permits..... 16.04.172
Work on Sunday
Special permit required 16.04.150

BUILDINGS AND CONSTRUCTION (Cont'd.)
Specific structures and uses
Demolition
Removal of debris required 16.04.190
Fences 16.04.200
Signs..... 16.04.210
Street numbers
Display required when 16.04.220
Trailers and mobile homes..... 16.04.230
Board of fire and building code appeals
Appeal procedures
Filing fee..... 2.80.090
Filing time limit reduction conditions..... 2.80.100
Appointment, qualifications and term of members..... 2.80.020
Compensation
Removal conditions 2.80.040
Created
Scope of activities..... 2.80.010
Effect of board decisions .. 2.80.110
Organization and officers .. 2.80.030
Quorum
Conflicts of interest 2.80.070
Replacement of members .. 2.80.050
Rules and regulations for conduct of business
Meetings and hearings .. 2.80.060
Variance granting authority 2.80.080
Building codes
Adoption by reference 16.08.010
Amendments
International Building Code 16.08.012
International Energy Conservation Code . 16.08.016
International Residential Code for One- and Two-Family Dwellings 16.08.014
Building permits
Application..... 16.28.040

BUILDINGS AND CONSTRUCTION (Cont'd.)
Applications
Abandonment
Extensions 16.28.180
Examination by director
Exception 16.28.080
Timely action required .. 16.28.070
Approved permits and construction hours signs
Posted at premises 16.28.230
Blasting
Permit required
Regulations 16.28.020
Building shell finish-out permit 16.28.156
Building shell permit 16.28.154
Change in contractor
Reissuance of permit
Fees 16.28.260
Encroachment on street lines
Special application 16.28.170
Failure to obtain permit
Fees tripled 16.28.130
Fee schedule
Provisions re 16.28.110
Fees
Refunds 16.28.140
Foundations permit
Utility installations 16.28.150
General liability insurance required when 16.28.100
Interpretation
Expiration
Extensions 16.28.240
Issuance 16.28.190
Issuance of permits for the demolition of historic structures and sites ... 16.28.195
Major projects
Posting of information sign required 16.28.235
Moving of houses, buildings, or structures 16.28.175
Nontransferability 16.28.220
Normal maintenance repair
Permits not required..... 16.28.030
Permit denial conditions ... 16.28.200

BUILDINGS AND CONSTRUCTION (Cont'd.)
Plans and specifications
Requirements 16.28.050
Plot diagrams required..... 16.28.060
Private water system
Approval required..... 16.28.160
Required when 16.28.010
Reviewed drawings
Marked
Copy at jobsite..... 16.28.090
Structural framing permit.. 16.28.152
Supervision required when 16.28.250
Valuations
Computations 16.28.120
Work authorized
Plumbing and electrical permit requirements applicable 16.28.210
Certificates of occupancy
Existing buildings
Examination and inspection 16.36.040
Green permits for sustainable design 16.36.050
Issuance
Contents 16.36.020
Prerequisite for occupancy. 16.36.010
Temporary certificates 16.36.030
Construction noise ..... 9.30.010 et seq.
See: NOISE AND AMPLIFIED SOUND
Defacing buildings under construction 11.24.040
Department of codes administration
Assignment of additional functions and personnel to department 2.20.060
Building inspection staff... 2.20.100
Conflicts with civil service commission rules 2.20.090
Department created
Organization and membership 2.20.010
Director
Additional powers and duties 2.20.040

BUILDINGS AND CONSTRUCTION (Cont'd.)
Determination of duties of sections and units..... 2.20.050
Service as secretary of certain boards..... 2.20.030
Employees
Conflict-of-interest restrictions..... 2.20.080
Gas/mechanical inspection staff..... 2.20.110
In-service training fund.... 2.20.070
Metropolitan administrative hearing officer..... 2.20.130
Plumbing inspection staff.. 2.20.120
Powers and functions..... 2.20.020
Electrical code
Adopted by reference..... 16.20.140
Amendments
Electrical code..... 16.20.150
Electrical sections of residential code, one- and two-family dwellings..... 16.20.154
Electrical permits
Additions to existing installations
Prerequisites..... 16.20.290
Additions to unlawful installations..... 16.20.280
Application..... 16.20.180
Applications
Examination by director..... 16.20.220
Timely action required..... 16.20.230
Change in contractor
Reissuance of permit Fees..... 16.20.345
Display of license and advertising..... 16.20.195
Exemptions..... 16.20.170
Expiration
Extension..... 16.20.330
Fees
Refunds..... 16.20.260
Schedule—Electrical permits..... 16.20.250
BUILDINGS AND CONSTRUCTION (Cont'd.)
Homeowner permits
Prerequisites..... 16.20.200
Inspection required..... 16.20.270
Interpretation
Limited authority..... 16.20.320
Issuance..... 16.20.300
Nontransferability..... 16.20.340
Permit denial conditions 16.20.310
Plans and specifications. 16.20.210
Plans prepared by others 16.20.215
Registration requirements
Exceptions..... 16.20.190
Required when..... 16.20.160
Reviewed plans
Procedure
Copy at jobsite..... 16.20.240
General regulations
Additional requirements
Authority of director.. 16.20.070
Failure to comply with chapter unlawful... 16.20.130
Hazardous installations
Abatement
Condemnation
Discontinuance of service... 16.20.110
Inspection records
Open to public..... 16.20.080
Installations
By homeowner..... 16.20.040
Restrictions..... 16.20.050
Interference with director prohibited. 16.20.120
Proper maintenance required
Owner's responsibility 16.20.030
Purpose of provisions... 16.20.010
Revocation of permits or approval..... 16.20.100
Rules and regulations
Enforcement authority 16.20.060
Scope..... 16.20.020
Stop-work orders
Issuance
Exception..... 16.20.090
Inspections
Certificate of approval

BUILDINGS AND CONSTRUCTION (Cont'd.)
Issuance
Report of defective work 16.20.440
Covering work prior to test prohibited..... 16.20.450
Inspection test
Permittee's responsibility 16.20.380
Material and labor for tests
Permittee's responsibility 16.20.390
Notice of approval
When Posted..... 16.20.400
Notice of rejection 16.20.420
Notice when work ready for inspection 16.20.370
Reinspections 16.20.410
Required when 16.20.350
Temporary use of power pending inspection . 16.20.360
Testing of existing defective systems .. 16.20.430
Environmental resources
See herein: Sustainable Development Design Standards
Fire department
Inspection of buildings 2.28.150
Flood control regulations
Building permit applications
Review conditions..... 16.56.010
Subdivision proposals
Review conditions..... 16.56.020
Water supply and sanitary sewage systems..... 16.56.030
Floor loads
Computation of safe loads
Responsibility of owner . 16.40.020
Exceeding posted capacity prohibited 16.40.040
Occupancies exceeding safe capacity prohibited 16.40.010
Posting safe loads in certain buildings..... 16.40.030
Gas/mechanical regulations
Certification of contractors

BUILDINGS AND CONSTRUCTION (Cont'd.)
Annual renewal
Penalty for failure to renew..... 16.16.700
Application
Duty of contractor
Prerequisites 16.16.620
Classifications
Defined..... 16.16.600
Classifications of certificates
Enumerated..... 16.16.590
Duties of certificate holders..... 16.16.710
Examination
Content..... 16.16.650
Failure to appear..... 16.16.660
Notice of 16.16.640
Examination, certification and registration required..... 16.16.610
Fees..... 16.16.690
Inactivation of certificate upon holder's request 16.16.730
Issuance
Requirements..... 16.16.680
Limited certificate..... 16.16.630
Reexamination 16.16.670
Revocation of certificate
Grounds
Notice
Recertification... 16.16.720
Contractor requirements
Advertisements must include certificate numbers and classification 16.16.860
Certification required for registration as contractor 16.16.800
Contractor's eligibility for permits
Employment of certificate holder required 16.16.820
Display of license and advertising 16.16.840

BUILDINGS AND CONSTRUCTION (Cont'd.)
Duties of gas/mechanical contractors 16.16.790
Issuance of certificates to existing contractors without examination
Requirements 16.16.770
Metropolitan gas and appliance contractor defined .. 16.16.760
Metropolitan HVAC&R contractor defined .. 16.16.750
Metropolitan master mechanical contractor defined .. 16.16.740
Registration, bonding and insurance
Requirements 16.16.780
Revocation of registration
Grounds
Notice
Reinstatement ... 16.16.810
Stop work order
Issued for work authorized under certificate holder no longer employed 16.16.830
Vehicle identification requirements 16.16.850
Gas/mechanical codes
Adopted by reference ... 16.16.180
Certain supplemental codes, standards . 16.16.190
Amendments
Fuel Gas Code; local amendments 16.16.240
Gas/mechanical sections; International Residential Code, One- and Two-Family Dwellings 16.16.230
International Mechanical Code; local amendments modified 16.16.260

BUILDINGS AND CONSTRUCTION (Cont'd.)
Electrical connections ... 16.16.280
Equipment, appliances and/or HVAC&R units..... 16.16.270
Fuel gas installations and operating pressures 16.16.320
Gas connections
Adequate air supply required 16.16.300
By whom 16.16.310
Liquefied Petroleum Gases Code
Local amendments.... 16.16.250
Plumbing connections... 16.16.290
Work not requiring contractor's license
Permit required 16.16.330
General regulations
Additional requirements
Determined by director 16.16.150
Alteration or repair to existing system
Compliance required
Exception 16.16.040
Alternate methods or materials
Approval required 16.16.170
Change in occupancy classification
Conformance required 16.16.050
Conflicts with other ordinances 16.16.160
Enforcement
Authority of director
Approval of promulgated regulations required 16.16.080
Hazardous installations
Abatement..... 16.16.140
Homeowner permits
Regulations..... 16.16.070
Inspection records
Open to public..... 16.16.090
Intent
Remedial 16.16.010

BUILDINGS AND CONSTRUCTION (Cont'd.)
- Proper maintenance required
  - Owner's responsibility 16.16.030
- Revocation of permit
  - Fees not refunded 16.16.130
- Right of entry 16.16.100
- Scope 16.16.020
- Stop work order
  - Appeal 16.16.120
  - Service
    - Content
      - Emergency procedure 16.16.110
- Variances for existing buildings
  - Authority of director 16.16.060

Inspections
- Alteration of existing system 16.16.500
- Certificate of approval 16.16.570
- Inspection test
  - Permittee's responsibility 16.16.510
- Notice of approval 16.16.550
- Notice of rejection 16.16.560
- Notice to director that work is ready for inspection 16.16.530
- Required when 16.16.490
- Retesting and reinspection
  - Fee 16.16.540
- Temporary certificate of approval 16.16.580
- Time schedule 16.16.520

Permits
- Application
  - Signature of certificate holder. 16.16.360
- Authority of permit 16.16.440
- Change in contractor
  - Reissuance of permit
    - Fees 16.16.470
- Examination of applications 16.16.380
- Expiration
  - Extension 16.16.450
- Failure to obtain permit
  - Fees tripled 16.16.410

BUILDINGS AND CONSTRUCTION (Cont'd.)
- Fees
  - Refunds 16.16.480
  - Schedule—Gas/mechanical permits and classification of appliances 16.16.400
- Issuance 16.16.420
- Nontransferability
  - Refunds 16.16.460
- Plans and specifications
  - Requirements 16.16.370
  - Reviewed
    - Copy at jobsite 16.16.390
- Refusal
  - Written statement 16.16.430
- Registration as metropolitan master contractor required
  - Exception 16.16.350
- Required when
  - Exceptions 16.16.340

Green building practices. See herein: Sustainable Development Design Standards

Inspections
- Covering structural framework
  - Approval required 16.32.050
- Establishment of boundary lines 16.32.020
- Inspections prerequisite to further work 16.32.060
- Plastering
  - Approval required 16.32.040
- Required when
  - Authority of director 16.32.010
- Successive inspections
  - When conducted 16.32.030

Management of public rights-of-way for make ready work 13.18.010 et seq.
- See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS

BUILDINGS AND CONSTRUCTION (Cont'd.)
Naming of public buildings .. 13.26.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Noise control
Construction noise..... 16.44.010
Plumbing code
Adoption by reference..... 16.12.120
Amendments
International Plumbing Code 16.12.130
Plumbing sections of International Residential Code for one- and two-family dwellings..... 16.12.140
General regulations
Additional requirements
Authority of director.. 16.12.050
Conflicts with other ordinances 16.12.060
Enforcement
Promulgation of regulations..... 16.12.040
Inspection records
Open to public..... 16.12.070
Noncompliance
Stop work orders 16.12.090
Proper maintenance
Owner responsibility . 16.12.030
Purpose
Remedial 16.12.010
Revocation of permits
Fees not refunded..... 16.12.110
Right of entry 16.12.080
Scope 16.12.020
Unsafe installations
Abatement..... 16.12.100
Inspections
Certificate of approval
Issuance 16.12.440
Covering work prior to approval prohibited 16.12.450
Inspection test
Permittee's responsibility 16.12.310
Materials and labor for tests 16.12.330
BUILDINGS AND CONSTRUCTION (Cont'd.)
Notice of approval
When
Posted..... 16.12.430
Notice of rejection 16.12.410
Notice to director that work is ready for inspection 16.12.320
Reinspection required
Fee 16.12.420
Required when 16.12.300
Testing
Final test
Additional tests 16.12.370
Procedure for air test . 16.12.360
Procedure for water test 16.12.350
Testing of existing plumbing..... 16.12.380
Testing of interior leaders and downspouts 16.12.390
Testing of plumbing and drainage systems required..... 16.12.340
Testing water supply systems 16.12.400
Plumbing permits
Application 16.12.160
Applications
Examination by director..... 16.12.200
Timely action upon ... 16.12.190
Change in contractor
Reissuance of permit
Fees..... 16.12.295
Expiration
Extensions..... 16.12.290
Failure to obtain permit
Fees tripled
Exception 16.12.230
Fee schedule
Plumbing permits, fixture classifications.... 16.12.220
Fees
Issuance 16.12.250
Refunds 16.12.240
Interpretation
Limit of authority..... 16.12.270
Nontransferability..... 16.12.280

BUILDINGS AND CONSTRUCTION (Cont'd.)
Permit denied 16.12.260
Plans and specifications Requirements..... 16.12.180
Qualifications 16.12.170
Required Exceptions..... 16.12.150
Reviewed plans Labeled Copy at jobsite 16.12.210
Preservation of existing buildings
Exemptions for historic buildings..... 16.48.020
Variances authorized when Guidelines 16.48.010
Property standards
Dwellings and structures unfit for human habitation, occupation or use
Appeal 16.24.610
Complaint and order Service 16.24.600
Complaint procedures Hearing..... 16.24.580
Costs of repair or demolition Lien on property..... 16.24.650
Demolition of building Disposal of debris 16.24.640
Determination of unfitness for habitation, occupation or use .. 16.24.570
Failure to comply Penalty 16.24.660
Findings, appointment, and purpose 16.24.560
Order to repair, vacate or demolish required when..... 16.24.590
Removal or demolition of buildings Notice to vacate 16.24.630
Warning placards..... 16.24.620
Emergency circumstances
Closing streets 16.24.290
Costs of temporary safeguards or emergency repairs.. 16.24.270
BUILDINGS AND CONSTRUCTION (Cont'd.)
Emergency measures Imminent danger 16.24.240
Emergency repairs 16.24.260
Hearing 16.24.280
Temporary safeguards... 16.24.250
Enforcement
Alternative materials, methods, and equipment..... 16.24.230
Codes offender school... 16.24.185
Existing remedies 16.24.160
Historic buildings 16.24.210
Notice of violation 16.24.170
Prosecution of repeat violation 16.24.190
Prosecution of violation. 16.24.180
Violation Penalties..... 16.24.200
Workmanship 16.24.220
General provisions
Conflicts with other ordinances 16.24.050
Definitions 16.24.030
Enforcement Additional rules and regulations..... 16.24.070
Intent Remedial 16.24.020
Scope 16.24.040
Severability 16.24.090
Title..... 16.24.010
Unlawful acts 16.24.060
Inspections
Authority to inspect buildings, structures, and premises 16.24.100
Certificate of occupancy required..... 16.24.130
Inspection fees 16.24.150
Inspection of dilapidated dwellings, buildings, and structures..... 16.24.120
Issuance of temporary certificates of occupancy..... 16.24.140
Right of entry for inspections 16.24.110

BUILDINGS AND CONSTRUCTION (Cont'd.)
Minimum standards for buildings, structures, and premises
Duct systems
General 16.24.520
Electrical equipment 16.24.500
Electrical facilities 16.24.490
Elevators, escalators and dumbwaiters 16.24.510
Exterior property areas .. 16.24.330
Exteriors of buildings and structures 16.24.340
Extermination 16.24.370
Fire protection systems .. 16.24.550
Fire resistance ratings ... 16.24.540
Fire safety requirements
Means of egress 16.24.530
Heating facilities 16.24.470
Interiors of buildings and structures 16.24.350
Light 16.24.380
Mechanical equipment .. 16.24.480
Occupancy limitations .. 16.24.400
Plumbing fixtures and fixture requirements 16.24.410
Plumbing systems and fixtures
General 16.24.430
Responsibility 16.24.310
Rubbish and garbage 16.24.360
Sanitary drainage system 16.24.450
Scope 16.24.300
Toilet rooms 16.24.420
Vacant buildings and structures 16.24.320
Ventilation 16.24.390
Water system 16.24.440
Radon regulation in metropolitan government buildings
Continued occupancy prohibited 10.57.040
Definitions 10.57.010
Effective date 10.57.080
Exceptions 10.57.050
Occupancy prohibited 10.57.020
Repealer 10.57.060
Severability 10.57.070
BUILDINGS AND CONSTRUCTION (Cont'd.)
Surveys required 10.57.030
Rendering plants
Construction, facilities and operation 6.60.030
Rental inspections
Appeals 16.33.130
Authority; intent
Remedial 16.33.010
Definitions 16.33.020
Director 16.33.030
District designation 16.33.140
Exemption 16.33.100
Failure to comply—
Penalty 16.33.160
Follow-up inspections 16.33.090
Inspections 16.33.070
No fee schedule 16.33.120
Notice 16.33.050
Owners duty to notify director 16.33.060
Periodic inspections 16.33.080
Powers of director 16.33.110
Powers supplemental 16.33.150
Required registration 16.33.170
Residential rental inspection districts
Authorized 16.33.040
Rodents, insects and other pests
Accumulation of building materials 10.32.140
Buildings in which foodstuffs are stored .. 10.32.030
Smoking in metropolitan buildings, prohibition of. 10.18.010 et seq.
See: SMOKING
Sustainable development design standards
Green building practices
Budgeting and financing 16.60.070
Continued monitoring ... 16.60.110
Definitions 16.60.040
Exemptions 16.60.100
Implementation 16.60.090
LEED™ green building rating system
Adopted 16.60.010
Organizations affected .. 16.60.030
Policy 16.60.010
Policy and goals 16.60.050

BUILDINGS AND CONSTRUCTION (Cont'd.)
Procedures and responsibilities 16.60.060
Purpose 16.60.020
Training 16.60.080
Trailer courts
Service buildings 10.40.050
Unsafe buildings
Notice to vacate 16.52.070
Vehicles emerging from alley, driveway or building 12.24.050
Waste management
Urban services district—Waste collection and disposal
Building debris—responsibility for removal 10.20.250

BULLYING PREVENTION
Bullying prohibited 2.232.020
Definitions 2.232.010

BURGLAR ALARMS
Burglar and fire alarm systems ..... 10.60.010 et seq.
See: ALARMS

BURIALS
Pauper burials 2.36.090

BUSES
Bus and taxicab stands
Loading and unloading .... 12.48.070 et seq.
See: LOADING AND UNLOADING
Defined 12.04.030
Metropolitan Nashville Airport Authority..... 2.60.310
School buses
Defined 12.04.325
Overtaking and passing restrictions..... 12.16.180
Use of mobile telephones while operating a school bus or other vehicle transporting children..... 12.68.210
Spitting in public conveyances..... 11.16.080

BUSINESS IMPROVEMENT DISTRICTS
Downtown Central Business Improvement District (Downtown CBID)..... 2.177.010 et seq.
See: DOWNTOWN IMPROVEMENT DISTRICT
Gulch Central Business Improvement District ... 2.176.010 et seq.
See: GULCH CENTRAL BUSINESS IMPROVEMENT DISTRICT
Midtown Central Business Improvement District (MBID) ..... 2.179.010 et seq.
See: MIDTOWN CENTRAL BUSINESS IMPROVEMENT DISTRICT
South Nashville Central Business Improvement District (SONA CBID).. 2.178.010 et seq.
See: SOUTH NASHVILLE IMPROVEMENT DISTRICT

BUSINESS LICENSES AND REGULATIONS
Advertising signs and other advertising methods..... 6.04.010 et seq.
See: ADVERTISEMENTS AND ADVERTISING
After hours establishments ... 6.06.010 et seq.
See: ALCOHOL AND ALCOHOLIC BEVERAGES
Booting services ..... 6.81.005 et seq.
See: BOOTING SERVICES
Business district
Defined 12.04.035
Business transactions after a natural disaster..... 6.82.010 et seq.
See: NATURAL DISASTERS
Cable communications franchise and regulations ..... 6.08.005 et seq.
See: COMMUNICATIONS

BUSINESS LICENSES AND REGULATIONS (Cont'd.)
Commercial solicitors ..... 6.64.010 et seq.
See: SOLICITATIONS
Electricians, electrical contractors and equipment installers ..... 6.20.010 et seq.
See: ELECTRICITY
Entertainment transportation . 6.77.010 et seq.
See: ENTERTAINMENT TRANSPORTATION
Films and live entertainers ... 6.24.010 et seq.
See: AMUSEMENTS AND ENTERTAINERS
Foreign trade zones ..... 6.14.010 et seq.
See: FOREIGN TRADE ZONES
Franchises for fiber optic communications services ..... 6.26.010 et seq.
See: COMMUNICATIONS
Hotels and rooming houses... 6.28.010 et seq.
See: HOTELS/MOTELS
Hucksters and peddlers..... 6.32.010 et seq.
See: PEDDLERS AND SOLICITORS
Moving companies..... 6.44.010
Pawnbrokers and secondhand dealers ..... 6.48.010 et seq.
See: PAWNBROKERS AND SECONDHAND DEALERS
Plumbers, and plumbing and septic tank contractors .. 6.52.010 et seq.
See: PLUMBERS AND PLUMBING
Procurement of construction contracts
Business tax license requirement..... 4.20.065
Rendering plants ..... 6.60.010 et seq.
See: FACTORIES AND PLANTS
Seated sightseeing vehicles... 6.78.010 et seq.
See: SEATED SIGHTSEEING VEHICLES

BUSINESS LICENSES AND REGULATIONS (Cont'd.)
Sexually oriented businesses . 6.54.010 et seq.
See: SEXUALLY ORIENTED BUSINESSES
Small business economic development incentive grants ..... 2.212.010 et seq.
See: SMALL BUSINESS ECONOMIC DEVELOPMENT INCENTIVE GRANTS
Solid fuel sales or hauling.... 6.68.010 et seq.
See: FUEL AND GAS
Taxicabs ..... 6.72.010 et seq.
See: TAXICABS
Urban services district regulations
Auctions and auctioneers .. 6.84.010 et seq.
See: AUCTIONS AND AUCTIONEERS
Auctions sales of automobiles or jewelry ..... 6.88.010 et seq.
See: AUCTIONS AND AUCTIONEERS
Bankruptcy, close-out and similar sales ..... 6.92.010 et seq.
See: SALES
Pawnbrokers, secondhand dealers and junk dealers..... 6.100.010 et seq.
See: PAWNBROKERS AND SECONDHAND DEALERS
Weights and measures..... 6.76.010 et seq.
See: WEIGHTS AND MEASURES
Wrecker and towing services. 6.80.010 et seq.
See: WRECKER AND TOWING SERVICES

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CABLE TELEVISION
Cable communications franchise and regulations ..... 6.08.005 et seq.
See: COMMUNICATIONS

CAMPING
Mass gatherings
Overnight camping 10.44.090
Parks, recreational facilities and cemeteries 13.24.410
CARAVANS. See: PARADES
CARCASSES
Removal of dead animals..... 10.70.010 et seq.
See: ANIMALS AND FOWL
Rendering plants
Handling diseased carcasses 6.60.090
CATERERS
Beer and alcoholic beverages of less than eight percent
Wholesale and retail permits 7.08.105
CATS. See: ANIMALS AND FOWL
CATTLE. See: ANIMALS AND FOWL
CEMETERIES
Pauper burials..... 2.36.090
Street, sidewalks and public places
General regulations..... 13.24.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
CEREMONIES
Parks, recreational facilities and cemeteries 13.24.200
CERTIFICATES AND CERTIFICATION
Administration and procedures
Permits and certificates of compliance ..... 17.40.520 et seq.
See: ZONING (Title 17)
Boards and commissions
Organization and operation of boards and commissions
Election of officers
Certification of organization 2.64.040
Building and construction certificates of occupancy 16.36.010 et seq.
See: BUILDINGS AND CONSTRUCTION
CERTIFICATES AND CERTIFICATION (Cont'd.)
Certificate of public convenience and necessity ..... 6.75.020 et seq.
See; PEDICABS AND PEDAL CARRIAGES
Electricians, electrical contractors and equipment installers..... 6.20.010 et seq.
See: ELECTRICITY
Entertainment transportation
Certificate of Public Convenience and Necessity
Findings—Issuance of certificate, renewal or additional permits..... 6.77.030
Horse-drawn carriage service
Certificate of pubic convenience and necessity..... 12.54.020 et seq.
See: HORSE-DRAWN CARRIAGES
Industrial waste discharges
Discharge permits
Application signatories and certifications... 15.60.258
Low speed vehicles ..... 6.73.020 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Other passenger vehicles for hire
Certification of public convenience and necessity..... 6.74.020 et seq.
See: VEHICLES FOR HIRE
Procurement of construction contracts
Utilization of apprentice, training, and certification programs
Employer information... 4.20.105
Property taxes
Proration of real property tax assessments affected by disaster certified by FEMA.... 5.20.090

CERTIFICATES AND CERTIFICATION (Cont'd.)
Seated sightseeing vehicles... 6.78.020 et seq.
See: SEATED SIGHTSEEING VEHICLES
Taxicabs
Certificate of public convenience and necessity..... 6.72.020 et seq.
See: TAXICABS
Vital statistics ..... 10.04.020 et seq.
See: VITAL STATISTICS
Weights and measures..... 6.76.010 et seq.
See: WEIGHTS AND MEASURES
CHARITIES AND CHARITABLE ORGANIZATIONS
Financial policies
Grants made to nonprofit organizations 5.04.070
Health department
Inspection
Charitable institutions, jails and other metropolitan institutions confining persons .. 2.36.070
Metropolitan employee's consolidated charities program..... 2.218.010 et seq.
See: OFFICERS AND EMPLOYEES
CHARTER REVISION COMMISSION
Appointment, compensation and term of members
Vacancy filling..... 2.120.030
Bylaws, rules and regulations 2.120.070
Created
Purpose..... 2.120.020
Establishment
Council intent
Statutory authority 2.120.010
Meetings 2.120.060
Officers 2.120.050
Personnel 2.120.100
Powers and duties 2.120.090
Qualifications for members .. 2.120.040
Quorum for voting 2.120.080
CHECKS
Financial policies
Funds collected
Checks made payable to metropolitan government 5.04.010
Returned check charge..... 5.04.012
CHILDREN. See: MINORS
CIRCULARS AND HANDBILLS
Advertising signs and other advertising methods
Circulars or handbills
Distribution permitted when 6.04.050
Distributing literature near polling places 1.12.040
Littering
Distribution in public places..... 10.24.030
Distribution on vehicles ... 10.24.040
CITATIONS
Fair employment and housing practices
Issuance of citations and warrants 11.20.120
General penalty and citations for violations..... 1.24.020 et seq.
See: CODE OF ORDINANCES
Traffic citations ..... 12.08.180 et seq.
See: TRAFFIC AND MOTOR VEHICLES
CITIZENSHIP
Registration of convicts
Restoration of citizenship.. 1.20.040
CIVIL DISTRICTS
First civil district designated
Boundaries 1.08.010
Map of district boundaries ... 1.08.030
Second civil district designated
Boundaries 1.08.020
CLAIMS
Department of law ..... 2.40.100 et seq.
See: LAW, DEPARTMENT OF
COAL
Weights and measures
Coal sales
Licensed weigher required when
Certificate 6.76.270

COAL (Cont'd.)
Coal sold by weight 6.76.170
COASTERS
Miscellaneous driving rules .. 12.68.090
CODE OF ORDINANCES
Civil districts
First civil district designated
Boundaries 1.08.010
Map of district boundaries . 1.08.030
Second civil district designated
Boundaries 1.08.020
Code adoption
Code adopted by reference
Scope
Contents 1.01.010
Copies of code on file 1.01.020
General penalty for code violations
Continuing offenses
Schedule 1.01.030
Severability 1.01.040
Supplemental and replacement pages 1.01.050
Elections
Distributing literature near polling places 1.12.040
Polling place defined 1.12.010
Posting of political signs
Near polling places 1.12.030
On telephone or light poles 1.12.020
Restrictions on persons in or near polling places . 1.12.050
Soliciting votes near polling places 1.12.060
General penalty and citations for violations
Authority to issue citations
Enforcement procedures
Failure to answer a citation
Penalties 1.24.030
Expungement of public records regarding violations 1.24.050
Failure to pay or secure a fine
Commitment to workhouse 1.24.040
CODE OF ORDINANCES (Cont'd.)
Summons issuance for sanitation, litter control and animal control violations 1.24.020
General provisions
Catchlines of code sections 1.04.040
Definitions and rules of construction 1.04.020
Effect of repeal of ordinances 1.04.050
General compliance requirement for permits issued by metropolitan government 1.04.070
Name of code for citation
Contents 1.04.010
Provisions considered continuations of existing ordinances and earlier codes 1.04.030
Severability of portions of the code 1.04.060
Metropolitan jail and workhouse
Consolidation of metropolitan and urban jails and workhouses 1.16.010
Custody and interrogation of prisoners 1.16.050
Escapes by prisoners 1.16.070
Fee for inmate's personal items 1.16.080
Prisoner incarceration procedures
Disposition of prisoner property 1.16.040
Sheriff's authority 1.16.020
Registration of convicts
Change of address
Notification requirements 1.20.020
Failing or refusing to register
Giving false information 1.20.030
Registration of certain persons required when
Information required 1.20.010
Restoration of citizenship .. 1.20.040

COLLECTIONS
- Department of water and sewer services
  - Billings and collection manager 2.52.030
- Metropolitan courts
  - Court costs
    - Time of collection
      - Procedure when amount paid is insufficient 2.56.080
- Metropolitan trustee to collect delinquent property taxes 2.12.030

COMMERCIAL COMPATIBILITY OVERLAY
- Zoning regulations ..... 17.36.740 et seq.
- See: ZONING (Title 17)

COMMISSIONS. See: BOARDS, COMMITTEES, AND COMMISSIONS

COMMITTEES. See: BOARDS, COMMITTEES, AND COMMISSIONS

COMMUNICATIONS
- Cable communications franchise and regulations
  - Applications for grant, renewal, or modification of franchises..... 6.08.040
  - Consumer protection and customer service..... 6.08.090
  - Definitions and word usage 6.08.020
  - Discrimination prohibited . 6.08.150
  - Findings and intent of the council 6.08.005
  - General provisions..... 6.08.010
  - Grant of franchise 6.08.030
  - Insurance
    - Surety
      - Indemnification..... 6.08.120
  - Miscellaneous provisions .. 6.08.160
  - Operation and reporting provisions 6.08.070
  - Performance guarantees and remedies 6.08.130
  - Regulatory structure 6.08.080

COMMUNICATIONS (Cont'd.)
- System facilities, equipment, and services..... 6.08.060
- Effective communication with individuals with disabilities in metropolitan government programs and services ..... 2.214.010 et seq.
- See: PROGRAMS AND POLICIES
- Franchises for fiber optic communications services
  - Abandonment of right-of-way 6.26.170
  - Accounts, records and reports..... 6.26.250
  - Adjoining property owners 6.26.090
  - Adjustment of utility facilities 6.26.080
  - As built drawings..... 6.26.050
  - Assignment or lease of franchise..... 6.26.290
  - Bonds 6.26.200
  - Compensation to the metropolitan government..... 6.26.240
  - Compliance with applicable laws and ordinances..... 6.26.350
  - Conflict with other laws ... 6.26.340
  - Construction..... 6.26.040
  - Construction standards 6.26.060
  - Declaration of need..... 6.26.010
  - Definitions..... 6.26.020
  - Emergency or disaster 6.26.100
  - Extension of term..... 6.26.270
  - Grant of franchise 6.26.030
  - Indemnification..... 6.26.220
  - Insurance requirements 6.26.210
  - Joint use..... 6.26.130
  - Metropolitan government taking part in litigation..... 6.26.370
  - Moving wires..... 6.26.110
  - Office location..... 6.26.380
  - Preferential or discriminatory practices prohibited... 6.26.330
  - Protection of trees 6.26.160
  - Relocation of the system... 6.26.190

COMMUNICATIONS (Cont'd.)
Removal of city property .. 6.26.140
Renewal 6.26.280
Reservation of rights..... 6.26.150
Revocation and termination 6.26.310
Rights of abutting landowners 6.26.180
Service standards 6.26.320
Services to the metropolitan government..... 6.26.230
Severability..... 6.26.390
Suspension or revocation of construction permit 6.26.070
Temporary removal of facilities for demolition of buildings..... 6.26.120
Tennessee law governs..... 6.26.360
Term of franchise..... 6.26.260
Violations 6.26.300
Interfering with alarm or communication systems. 11.04.070
COMMUNITY DEVELOPMENT
Economic and community development incentive program..... 2.210.010 et seq.
See: DEVELOPMENT
COMMUNITY EDUCATION COMMISSION
Created..... 2.160.010
Executive director
Authority and qualifications 2.160.060
Meetings..... 2.160.040
Membership
Appointment and term of chairman and members..... 2.160.020
Officers 2.160.030
Powers and duties..... 2.160.050
COMMUNITY GARDEN GRANT PROGRAM
Administration 2.224.020
Eligibility-use of funds..... 2.224.030
Established..... 2.224.010
Parks and recreation department—Powers and responsibilities..... 2.224.050
Procedure for making grants . 2.224.040
COMPENSATION
Auditorium commission..... 2.116.020
Bicycle and pedestrian advisory commission
Membership—
Appointment, compensation and term of office 2.153.020
Board of fire and building code appeals
Compensation
Removal conditions 2.80.040
Board of mechanical, plumbing, and electrical examiners and appeals
Compensation and removal of members..... 2.76.040
Board of property standards and appeals 2.88.020
Charter revision commission . 2.120.030
Department of finance
Division of public property administration
Organization and operation
Composition of division
Salary of director... 2.24.150
Payroll section, payroll supervisor and assistant payroll supervisor 2.24.090
Department of general services
Director 2.32.020
Elected official compensation assessments required.... 3.52.020
Employee classification and compensation 3.52.010
Metro beautification and environment commission 2.152.020
Metropolitan council president 2.04.010
Metropolitan courts
Division of probation 2.56.110
Metropolitan safety advisory board..... 2.96.020
Other passenger vehicles for hire
Operations
Prohibition against compensation for right to pick-up

passengers 6.74.380
Police department
Extra compensation for certain personnel 2.44.060
COMPLAINTS
Fair employment and housing practices 11.20.110
Horse-drawn carriages
Complaint procedure 12.54.350
CONDEMNATION
Health department
Seizure, embargo, condemnation and disposal of prohibited materials..... 2.36.110
CONDUCT
After hours establishments
Prohibited conduct..... 6.06.070
Disorderly conduct..... 11.12.010
Low speed vehicles
Driver permit
Driver; conduct of..... 6.73.200
Metropolitan council..... 2.04.060 et seq.
See: METROPOLITAN COUNCIL
Metropolitan Nashville Airport Authority..... 2.60.190
Parks, recreational facilities and cemeteries 13.24.430
Standards of conduct, disclosure of interests, and enforcement; officers and employees.. 2.222.010
See: OFFICERS AND EMPLOYEES
CONFLICTS OF INTEREST
Board of fire and building code appeals 2.80.070
Board of mechanical, plumbing, and electrical examiners and appeals .. 2.76.090
Department of codes administration
Employees
Conflict-of-interest restrictions 2.20.080
Standards of conduct, disclosure of interests, and enforcement
Standards of conduct 2.222.020
CONSULTANTS
Department of water and sewer services
Employment of engineering consultants 2.52.040
CONTEXTUAL OVERLAY DISTRICT
Zoning regulations ..... 17.36.450 et seq.
See: ZONING (Title 17)
CONTRACTORS
Electrical contractors..... 6.20.130 et seq.
See: ELECTRICITY
Plumbers, and plumbing and septic tank contractors .. 6.52.010 et seq.
See: PLUMBERS AND PLUMBING
CONTRACTS AND AGREEMENTS
Department of finance
Division of public property administration
Metropolitan government real estate
Leasing or subleasing conditions 2.24.230
Organization and operation
Billboard lease agreement restrictions..... 2.24.211
Department of law
Eligibility for employment contracts
Term of contract 2.40.070
Economic and community development incentive program
Approval of economic and community development incentive grant agreements and PILOT agreements.... 2.210.030
Financial policies ..... 5.04.040 et seq.
See: REVENUE AND FINANCE
Foreign trade zones
Approval of agreements ... 6.14.020
Labor policy
Agreements requiring funding to be submitted to council .. 3.56.050

CONTRACTS AND AGREEMENTS (Cont'd.)
- Low speed vehicles
  - Equipment and operation
    - Contract rates 6.73.340
- Mayor
  - Agreements with tax-exempt institutions for payment of metropolitan government services .. 2.08.020
- Metropolitan highway and transportation safety coordinating council 2.168.030
- Metropolitan Nashville Airport Authority..... 2.60.060
- Metropolitan Nashville General Hospital 2.164.020, 2.164.050
- Pedicabs and pedal carriages
  - Equipment and operation
    - Contract rates 6.75.370
- Police department
  - Extra-duty police officers
    - Contracting to assign extra-duty police officers..... 2.44.210
- Procurement code ..... 4.04.010 et seq.
  - See: PROCUREMENT CODE
- Residential sanitary sewerage pumping systems
  - Agreement..... 15.34.080
- Social security
  - Execution of agreements
    - Board of education employees..... 3.48.030
    - Employees and officials . 3.48.020
- Streets, sidewalks and other public ways
  - Nashville Department of Transportation participation agreements
    - Definitions 13.21.010
    - Participation agreements with developers 13.21.020
- Taxicabs
  - Contract rates..... 6.72.450
  - Liability insurance agreement 6.72.210

CONTRACTS AND AGREEMENTS (Cont'd.)
- Tourism and convention commission
  - Budgetary and fiscal matters
    - Rules for purchase of service agreements . 2.148.030
- Wrecker and towing services
  - Contracting for service with metropolitan government..... 6.80.415

CONVENTION CENTERS
- Nashville Convention Center
  - Hucksters and peddlers 6.32.010
- Tourism and convention commission ..... 2.148.010 et seq.
  - See: TOURISM AND CONVENTION COMMISSION

COURTS
- Metropolitan courts
  - Court costs
    - Applicability of article .. 2.56.050
    - Assessment of court costs required when Amount..... 2.56.060
    - Effect of appeals on payment
      - Circuit court to collect costs when 2.56.090
    - Payment
      - Accounting and remittance 2.56.070
    - Time of collection
      - Procedure when amount paid is insufficient 2.56.080
  - Division of probation
    - Administration of the division
      - Appointment of employees 2.56.100
    - Employees
      - Classification and salaries 2.56.110
    - Probation counselor, division directors and staffing 2.56.120
    - Utilization of funds
      - Budget for operation.. 2.56.130

COURTS (Cont'd.)
DUI school staffing and records 2.56.560
Judge of juvenile court
Authority to detain certain juveniles
Education requirements for detainees 2.56.010
Justice integration services
Creation..... 2.56.400
Duties..... 2.56.460
Exemption 2.56.470
Membership..... 2.56.420
Policy committee..... 2.56.430
Powers 2.56.450
Presiding officer 2.56.440
Purpose 2.56.410
Parole and probation office
Chief probation officer authority
Other officers..... 2.56.150
Created..... 2.56.140
Investigation of petitioners for suspended sentences or paroles
Reports 2.56.180
Responsibilities and duties 2.56.160
Statutory powers and responsibilities..... 2.56.170
Supervision of parolees . 2.56.190
Parole of traffic violators
Failure to observe conditions deemed misdemeanor..... 2.56.020
Permissible use of DUI school fees collected.. 2.56.570
Permissible use of traffic safety school fees collected..... 2.56.540
Pre-trial release program... 2.56.600
Supervision fee
Exemption..... 2.56.610
Probate court
County judge
Alcohol Diversion and Preventive Treatment (ADAPT) Program supervisory authority..... 2.56.300
Property confiscated by police department
Custody by court clerk .. 2.56.030
Disposal conditions 2.56.040
Sheriffs office DUI school, creation of..... 2.56.550
Traffic safety school
Eligibility 2.56.510
Fee..... 2.56.530
General sessions court, creation of 2.56.500
Staffing and records..... 2.56.520
Traffic violations bureau
Created
Authority of clerk of the metropolitan court..... 2.56.200
Powers and duties..... 2.56.210
CRIMINALS
Horse-drawn carriages
Driver's permit
Criminal background investigation 12.54.140
Low speed vehicles
Driver permit
Criminal background investigation 6.73.130
Pedicabs and pedal carriages
Driver permit
Fingerprint-based criminal background investigation 6.75.130
Urban services district
Firearms and other weapons
Possession prohibited by certain persons 11.36.070
Sale prohibited to certain persons 11.36.060
CROSSWALK
Defined 12.04.050
Pedestrians
Crossing where crosswalks not marked 12.52.040
Pedestrian right-of-way in crosswalks
Driver responsibilities... 12.52.020
Use of right half of crosswalk..... 12.52.030
Traffic-control devices 12.12.130

CURBS
Curb loading zones..... 12.48.010 et seq.
See: LOADING AND UNLOADING
Defined 12.04.055
Parking
Sign requirements and use of curb/street painting 12.40.020
CURFEWS
Juvenile curfew ..... 11.28.200 et seq.
Mayor
General curfew proclamation authority..... 2.08.070
Persons exempt from general curfew..... 2.08.100
CUSTODY AND INTERROGATIONS
Metropolitan jail and workhouse
Custody and interrogation of prisoners..... 1.16.050

— D —

DAMAGES
Booting services
Equipment and operation
Vehicle requirements and damages 6.81.100
Department of law
Settlement of claims for damage to metropolitan government property.. 2.40.110
DEATHS
Removal of dead animals..... 10.70.010 et seq.
See: ANIMALS AND FOWL
Vital statistics ..... 10.04.010 et seq.
See: VITAL STATISTICS
DEBRIS. See: GARBAGE AND TRASH
DEMONSTRATIONS
Mayor
No limitation of freedom of speech or peaceful demonstrations 2.08.090
Metropolitan Nashville Airport Authority..... 2.60.240
DEPARTMENTS AND OTHER AGENCIES
Control of excessive vegetation..... 10.28.010 et seq.
See: VEGETATION
Department of codes administration..... 2.20.010
See: BUILDINGS AND CONSTRUCTION
Department of finance..... 2.24.010 et seq.
See: FINANCE
Department of general services ..... 2.32.010 et seq.
See: GENERAL SERVICES
Department of law ..... 2.40.010 et seq.
See: LAW, DEPARTMENT OF
Department of public works.. 2.48.010 et seq.
See: PUBLIC WORKS
Department of water and sewer services..... 2.52.010 et seq.
See: WATER, SEWERS AND OTHER PUBLIC SERVICES
Employee award programs
Award program 3.60.060
Suggestion award program. 3.60.010
Fire department ..... 2.28.010 et seq.
See: FIRE DEPARTMENT
Greenway and open space commission ..... 2.154.010 et seq.
See: GREENWAY AND OPEN SPACE COMMISSION
Health department..... 2.36.010 et seq.
See: HEALTH DEPARTMENT
Metro beautification and environment commission ..... 2.152.010 et seq.
See: METRO BEAUTIFICATION AND ENVIRONMENT COMMISSION
Metropolitan council ..... 2.04.010 et seq.
See: METROPOLITAN COUNCIL
Metropolitan courts ..... 2.56.010 et seq.
See: COURTS

DEPARTMENTS AND OTHER AGENCIES (Cont'd.)
Metropolitan highway and transportation safety coordinating council .... 2.168.010 et seq.
See: METROPOLITAN HIGHWAY AND TRANSPORTATION SAFETY COORDINATING COUNCIL
Metropolitan Nashville Airport Authority..... 2.60.010 et seq.
See: AVIATION AND AIRCRAFT
Metropolitan trustee..... 2.12.010 et seq.
See: METROPOLITAN TRUSTEE
Office of emergency management ..... 2.10.010 et seq.
See: EMERGENCY MANAGEMENT
Permit parking programs..... 12.42.010 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Police department ..... 2.44.010 et seq.
See: POLICE DEPARTMENT
Public defender ..... 2.16.010 et seq.
See: PUBLIC DEFENDER
DEPOSITORIES AND DEPOSITS
Revenue and finance financial policies
Depositories for metropolitan funds.... 5.08.010 et seq.
See: REVENUE AND FINANCE
DETACHED ACCESSORY DWELLING UNIT (DADU) OVERLAY DISTRICT
Zoning regulations ..... 17.36.680 et seq.
See: ZONING (Title 17)
DEVELOPMENT
Economic and community development incentive program
Approval of economic and community development incentive grant agreements and PILOT agreements.... 2.210.030
DEVELOPMENT (Cont'd.)
Definitions..... 2.210.010
Economic and community development incentive grants..... 2.210.020
Historic preservation grant program
Development of rules and regulations..... 2.215.040
Small business economic development incentive grants ..... 2.212.010 et seq.
See: SMALL BUSINESS ECONOMIC DEVELOPMENT INCENTIVE GRANTS
Water, sewers and other public services
Stormwater management
Infill development; applicability and requirements 15.64.131
DISABLED PERSONS
Assistance to small, disadvantaged, and service-disabled veteran owned businesses ..... 4.44.010 et seq.
See: PROCUREMENT CODE
Disability pensions..... 3.28.010 et seq.
See: OFFICERS AND EMPLOYEES
Effective communication with individuals with disabilities in metropolitan government programs and services..... 2.214.010 et seq.
See: PROGRAMS AND POLICIES
Health department
Medicine for indigent persons 2.36.080
Parking lots, decks and garages..... 13.40.070 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Parking meter zones..... 12.44.070 et seq.
See: TRAFFIC AND MOTOR VEHICLES

DISABLED PERSONS (Cont'd.)
Pedestrians
Use of motorized wheelchairs 12.52.150
DISCHARGES
Industrial waste discharges ... 15.60.010 et seq.
See: WATER, SEWERS AND OTHER PUBLIC SERVICES
DISCLOSURE
Standards of conduct, disclosure of interests, and enforcement
Disclosure 2.222.030
DISCRIMINATION
Cable communications franchise and regulations
Discrimination prohibited . 6.08.150
Fair employment and housing practices ..... 11.20.010 et seq.
See: PUBLIC PEACE, MORALS AND WELFARE
Metropolitan Nashville General Hospital
Admittance conditions
Discrimination prohibited 2.164.010
Procurement code
Discrimination of employment ..... 4.28.010 et seq.
See: PROCUREMENT CODE
DISEASES AND DISEASE CONTROL
Disease control
Action after notification
Chief medical director .. 10.16.080
Classification of diseases
Notification of authorities..... 10.16.020
Compliance required by hospital authorities ... 10.16.100
Compliance required by persons with disease
Quarantine conditions... 10.16.130
Concurrent disinfection.... 10.16.200
Definitions..... 10.16.010
Hospitalization of persons
Authorized when..... 10.16.110
Incubation periods..... 10.16.150
DISEASES AND DISEASE CONTROL (Cont'd.)
Interfering with duties of chief medical director. 10.16.090
Medical procedures after notification 10.16.140
Methods of control
Carriers 10.16.190
Certain diseases..... 10.16.170
Contacts..... 10.16.180
Minimum periods of communicability..... 10.16.160
Notification of authorities
By healthcare providers . 10.16.030
By persons other than healthcare providers..... 10.16.040
By private diagnostic laboratories 10.16.070
Notification of heads of households by healthcare providers .. 10.16.050
Reporting outbreaks of gastroenteritis and dysentery 10.16.060
Sale of milk and milk products restricted when 10.16.250
School attendance restrictions
Children with certain diseases 10.16.220
Immunization required .. 10.16.230
Serving or handling food prohibited by certain persons 10.16.240
Terminal disinfection 10.16.210
Work restrictions
Persons with tuberculosis 10.16.120
Rendering plants
Handling diseased carcasses 6.60.090
Trailer courts
Communicable or contagious diseases... 10.40.150
DISGUISES
Prohibited in public places
Exceptions..... 11.12.040
DISORDERLY CONDUCT
Low speed vehicles
Driver permit
Driver; conduct of..... 6.73.200

DISORDERLY CONDUCT (Cont'd.)
Equipment and operation
Passengers; disposition of disorderly 6.73.440
Offenses against public peace 11.12.010
Parks, recreational facilities and cemeteries 13.24.430
Pedicabs and pedal carriages
Driver permit
Driver; conduct of..... 6.75.210
Equipment and operation
Passengers; disposition of disorderly 6.75.480
DISORDERLY HOUSES
Prostitution, gambling and rowdiness prohibited 11.12.060
DITCHES
Urban services district regulations
Ditch digging
Permit required..... 13.32.020
DOCUMENTS AND DOCUMENTATION
Health department
False or misleading statements in documents or reports . 2.36.160
Unauthorized reproduction or alteration of department documents 2.36.150
Other passenger vehicles for hire
Operations
Pre-arrangement documented—Required procedures 6.74.320
Procurement code ..... 4.04.010 et seq.
See: PROCUREMENT CODE
Report and document filing policy ..... 2.188.010 et seq.
See: PROGRAMS AND POLICIES
DOGS. See: ANIMALS AND FOWL
DOMESTIC PARTNER BENEFITS
Adoption of rules and regulations 3.14.060
Benefits 3.14.030
DOMESTIC PARTNER BENEFITS (Cont'd.)
Definitions 3.14.010
Establishing domestic partnership 3.14.020
Severability 3.14.070
Tax liability 3.14.050
Termination of domestic partnership 3.14.040
DOWNTOWN IMPROVEMENT DISTRICT
Downtown Central Business Improvement District (Downtown CBID)
Annual budget 2.177.070
Created; boundary 2.177.010
Definitions..... 2.177.040
District annual reporting... 2.177.062
District grievance procedures..... 2.177.064
District management corporation 2.177.050
Dissolution..... 2.177.090
Powers 2.177.060
Estimated costs and rate of levy..... 2.177.080
Liberal construction 2.177.030
Purposes and mission..... 2.177.020
Special assessment procedure..... 2.177.080
DRIVEWAYS
General regulations ..... 13.12.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Obstructing visibility at 13.08.050
Parking
Blocking driveways or garages 12.40.130
Vehicles emerging from alley, driveway or building 12.24.050
DRUGS AND MEDICINES
Controlled substances
Possession of paraphernalia prohibited
Exceptions 11.16.050
Driving under the influence of intoxicating liquor or drugs..... 12.68.190

DRUGS AND MEDICINES (Cont'd.)
Drug related activity
Termination of public housing tenancy 11.16.060
Health department
Medicine for indigent persons 2.36.080
Miscellaneous offenses
Possession of marijuana in certain amounts..... 11.32.030
Pedestrians under the influence of alcohol or drugs..... 12.52.140
DUTIES
Air pollution control board... 10.56.090
Assistant public defender 2.16.010
Auditorium commission..... 2.116.030
Beer permit board..... 7.04.050
Bicycle and pedestrian advisory commission
Duties and purpose 2.153.030
Board of fair commissioners . 2.78.010
Board of mechanical, plumbing, and electrical examiners and appeals
Powers and duties 2.76.080
Boards, committees, and commissions
Community oversight board
Duties of the executive director..... 2.106.050
Powers and duties of the board..... 2.106.060
Charter revision commission . 2.120.090
Commercial solicitors
Identification badge
Duty to display..... 6.64.110
Permit
Duty to exhibit 6.64.110
Community education commission 2.160.050
Community garden grant program
Parks and recreation department—Powers and responsibilities ... 2.224.050
Department of codes administration..... 2.20.020
Department of emergency communications..... 2.30.020
DUTIES (Cont'd.)
Department of finance
Department of information systems
Officers
Duties 2.24.115
Director of finance
Powers and duties 2.24.020
Department of general services
Director 2.32.020
Department of law 2.40.190
Emergency communications district 2.156.030
Emergency management, office of..... 2.10.020
Employee award programs
Award board..... 3.60.070
Suggestion award board ... 3.60.030
Employees relations board ... 3.56.080
Fair employment and housing practices human relations commission.... 11.20.100
Fire department 2.28.250
Greenway and open space commission 2.154.030
Health department..... 2.36.020
Historical commission 2.128.060
County historian, qualifications and duties..... 2.128.070
Homeless services, office of
Duties of office 2.63.020
Justice integration services... 2.56.460
Lobbyist registration and disclosure
Administration of provisions 2.196.030
Mayor's powers and duties during proclaimed emergencies..... 2.08.080
Medical examiner's office 2.38.020
Metro beautification and environment commission 2.152.040
Metropolitan action commission 2.108.050
Metropolitan attorney 2.40.010
Metropolitan courts
Parole and probation office 2.56.160
Traffic violations bureau... 2.56.210

DUTIES (Cont'd.)
Metropolitan highway and transportation safety coordinating council 2.168.010
Metropolitan human relations commission 2.132.070
Metropolitan Nashville Arts Commission..... 2.112.040
Metropolitan safety advisory board..... 2.96.050
Metropolitan trustee
Storage of certain obsolete tax records
Duties and reports..... 2.12.020
Nashville Davidson County Continuum of Care Homelessness Planning Council 2.144.030
Nashville sustainability advisory committee
Powers and duties 2.155.040
Police department..... 2.44.020
Procurement code
Duties of the purchasing agent 4.16.030
Duties of the standards board 4.16.020
School crossing guard division 2.44.160
Urban forester
Duties under zoning ordinance..... 2.104.090
Vacant property review commission 10.86.040
Water, sewers and other public services
Stormwater management
Stormwater management commission
Regulations—
Meetings—
Duties 15.64.080

— E —

EASEMENTS
Mayor
Acceptance and execution of certain easements and permits..... 2.08.010

ECONOMICS
Economic and community development incentive program..... 2.210.010 et seq.
See: DEVELOPMENT
Small business economic development incentive grants ..... 2.212.010 et seq.
See: SMALL BUSINESS ECONOMIC DEVELOPMENT INCENTIVE GRANTS
EDUCATION
Community education commission ..... 2.160.010 et seq.
See: COMMUNITY EDUCATION COMMISSION
Fire department
Course of instruction 2.28.240
Metropolitan courts
Judge of juvenile court
Authority to detain certain juveniles
Education requirements for detainees 2.56.010
Provisions re..... 2.56.510 et seq.
See: COURTS
Urban forester
Educational functions..... 2.104.100
EMERGENCY COMMUNICATIONS, DEPARTMENT OF
Director
Powers and duties 2.30.030
Duties..... 2.30.020
Established..... 2.30.010
Personnel 2.30.040
ELDERLY PERSONS. See: SENIOR CITIZENS
ELECTIONS
Beer permit board
Election of officers 7.04.030
Number of votes required for certain actions 2.88.040
Boards and commissions
Organization and operation of boards and commissions
Election of officers
Certification of organization 2.64.040

ELECTIONS (Cont'd.)
Charter revision commission
Quorum for voting..... 2.120.080
Distributing literature near polling places 1.12.040
Polling place defined..... 1.12.010
Posting of political signs
Near polling places 1.12.030
On telephone or light poles 1.12.020
Restrictions on persons in or near polling places 1.12.050
Soliciting votes near polling places 1.12.060
Water, sewers and other public services
Stormwater management
Stormwater management commission
Voting regulations 15.64.090
ELECTRICAL CODE
Generally ..... 16.20.010 et seq.
See: BUILDINGS AND CONSTRUCTION
ELECTRICITY
Department of general services
Fleet electrification program 2.32.065
Electrical Code..... 16.20.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Electricians, electrical contractors and equipment installers
Electrical contractors
Appeal from work stoppage order 6.20.180
Change of status notification required—Failure to employ authorized contractors unlawful 6.20.160
Duties of electrical contractors, equipment contractors and low-voltage contractors 6.20.150
Registration
Required when 6.20.140
ELECTRICITY (Cont'd.)
Requirements for registration..... 6.20.130
Work stoppage order 6.20.170
Equipment installers
Equipment installer defined..... 6.20.200
Licensure requirements . 6.20.220
Permitted activities and duties 6.20.240
Registration required.... 6.20.210
General provisions
Altering or lending a license or using another's license unlawful
Penalties..... 6.20.125
Application for examination and licensure 6.20.040
Certificate of licensure
Expiration and renewal..... 6.20.110
Recordation..... 6.20.110
Examination
Conducting authority . 6.20.060
Examination..... 6.20.070
Failure to appear..... 6.20.070
Notice 6.20.050
Type 6.20.060
Fees
Examination, licensure and renewal..... 6.20.100
Licensure issuance conditions..... 6.20.090
Records available to the public 6.20.031
Reexamination 6.20.080
Registration and licensure requirements 6.20.030
Registrations and licenses
Classifications defined 6.20.020
Classifications established..... 6.20.010
Required..... 6.20.010
Registrations or licenses
Revocation and suspension..... 6.20.120
Temporary license..... 6.20.129

ELECTRICITY (Cont'd.)
Maintenance electrician
Limitation on work..... 6.20.360
Penalties for violations.. 6.20.360
Master electricians, electrical equipment installers, low-voltage wiring installers, metropolitan journeyman electricians, metropolitan apprentice electricians, and metropolitan beginning electricians
Active registration required..... 6.20.270
Duties..... 6.20.260
Licenses placed on inactive status..... 6.20.280
Reactivation..... 6.20.280
Requirements for license 6.20.250
Trailer courts
Electrical outlets and power lines..... 10.40.100

ELECTRONIC FORMATTING AND ONLINE POSTING OF REPORTS
Provisions, re..... 2.190.010

EMBARGO
Health department
Seizure, embargo, condemnation and disposal of prohibited materials..... 2.36.110

EMERGENCIES
Air pollution control
Emergency measures..... 10.56.140
Authorized emergency vehicle
Defined..... 12.04.020
General regulations, administration and enforcement..... 12.08.140
Business transactions after a natural disaster
Prices of goods and services to remain the same after state of emergency..... 6.82.010

EMERGENCIES (Cont'd.)
Fiber optic communications services, franchises for
Emergency or disaster..... 6.26.100
Fire department
Division of emergency ambulance and rescue service..... 2.28.030
Emergency assistance policies and procedures..... 2.28.060
Obedience to orders of emergency ambulance and rescue service personnel..... 2.28.050
Industrial waste discharges
Discharges to publicly owned treatment works
Dangerous discharge
Emergency procedures..... 15.60.190
Mayor
Powers and duties during proclaimed emergencies..... 2.08.080
Proclamation of emergencies by mayor 2.08.060
Metropolitan Nashville Airport Authority..... 2.60.150
Office of emergency management..... 2.10.010 et seq.
See: EMERGENCY MANAGEMENT
Procurement code
Source selection and contract formation
Emergency procurements..... 4.12.070
Wrecker and towing services
Emergency wrecker service..... 6.80.510 et seq.
See: WRECKER AND TOWING SERVICES

EMERGENCY COMMUNICATIONS DISTRICT
Created..... 2.156.010
Membership
Appointment and term of office..... 2.156.020

EMERGENCY COMMUNICATIONS DISTRICT (Cont'd.)
Powers and duties
Statutory authority 2.156.030
EMERGENCY MANAGEMENT
Office of emergency management
Duties of office 2.10.020
Emergency management council 2.10.050
Emergency support unit.... 2.10.040
Interfering with emergency management officials unlawful 2.10.060
Nashville KNOWS Program 2.10.070
Office established..... 2.10.010
Personnel 2.10.030
EMPLOYEES. See: OFFICERS AND EMPLOYEES
EMPLOYMENT
Fair employment and housing practices ..... 11.20.010 et seq.
See: PUBLIC PEACE, MORALS AND WELFARE
ENCROACHMENTS
General regulations ..... 13.16.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Urban services district regulations
Street and sidewalk regulations
Encroachments prohibited 13.32.080
ENGINES
Internal combustion engines
Air pollution control..... 10.56.240
ENTERTAINMENT TRANSPORTATION
Certificate of Public Convenience and Necessity
Annual renewal 6.77.060
Application—Information and fees required 6.77.040
ENTERTAINMENT TRANSPORTATION (Cont'd.)
Findings—Issuance of certificate, renewal or additional permits 6.77.030
Insurance required 6.77.070
Issuance and denial—Fees. 6.77.050
Request for additional vehicle permits 6.77.080
Required and term 6.77.020
Suspension and revocation. 6.77.090
Definitions 6.77.010
Equipment and Operation
Accidents..... 6.77.340
Compliance with other laws 6.77.380
Disposition of disorderly passengers 6.77.360
Enforcement..... 6.77.390
Limitation of service due to weather conditions. 6.77.410
Operating area 6.77.320
Ownership and control of vehicles..... 6.77.280
Passengers—Receiving and discharging by drivers 6.77.350
Records and reports..... 6.77.330
Soliciting business..... 6.77.370
Vehicle permit required.... 6.77.270
Vehicle requirements; safety standards..... 6.77.300
Vehicle to display identification 6.77.290
Vehicle and Driver Permits
Alcohol in an entertainment transportation vehicle. 6.77.240
Application—Approval or disapproval 6.77.140
Application—Information and fees required 6.77.120
Compliance with provisions 6.77.260
Conduct of drivers..... 6.77.220
Driver appearance 6.77.230
Expiration—Issuance and replacement fee..... 6.77.180
Fingerprint-based criminal background investigation..... 6.77.130

ENTERTAINMENT TRANSPORTATION (Cont'd.)
Hospitality training program—Participation required. 6.77.190
Issuance—Permit contents and display 6.77.150
New application after denial..... 6.77.170
Permit required—Violations and term... 6.77.110
Return of passengers' property 6.77.250
Revocation of a valid driver's license..... 6.77.210
Suspension, revocation, and appeal 6.77.200
Unpermitted drivers 6.77.160
Violations—Civil Penalty Schedules
Severability..... 6.77.430
Violations—Penalties—Additional regulations 6.77.420
ENVIRONMENT
Environmental and operational performance standards..... 17.28.010 et seq.
See: ZONING (Title 17)
Sustainable development design standards
Green building practices... 16.60.010 et seq.
See: BUILDING AND CONSTRUCTION
EQUAL BUSINESS OPPORTUNITY PROGRAM
Policy and objectives..... 4.46.001 et seq.
See: PROCUREMENT CODE
EQUIPMENT
Bicycles..... 12.60.010 et seq.
See: BICYCLES
Cable communications franchise and regulations 6.08.060
Department of finance
Division of public property administration
Organization and operation
Inventory of public property and equipment 2.24.190
EQUIPMENT (Cont'd.)
Electrical equipment installers ..... 6.20.200 et seq.
See: ELECTRICITY
Equipment and operation..... 6.75.290 et seq.
See: PEDICABS AND PEDAL CARRIAGES
Equipment inspection policy . 2.202.010
Financial policies
Equipment or automobile leases..... 5.04.020
Fuel-burning equipment
Air pollution control..... 10.56.220
Horses, carriages and equipment..... 12.54.240 et seq.
See: HORSE-DRAWN CARRIAGES
Low speed vehicles; equipment and operation 6.73.270 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Master electricians, equipment installers and low-voltage wiring installers ..... 6.20.250 et seq.
See: ELECTRICITY
Metropolitan Nashville Airport Authority
Storage of property and equipment 2.60.100
Motorcycles..... 12.64.010 et seq.
See: MOTORCYCLES
Noise and amplified sound
Excessive noise
Sound amplification equipment..... 9.20.010
Other passenger vehicles for hire; equipment ..... 6.74.200 et seq.
See: VEHICLES FOR HIRE
Procurement code ..... 4.04.010 et seq.
See: PROCUREMENT CODE
Public swimming pools
Operation of equipment.... 10.48.090
Rendering plants 6.60.060
Scooters, roller skates and in-line skates..... 12.58.010 et seq.
See: SCOOTERS, ROLLER SKATES AND IN-LINE SKATES

EQUIPMENT (Cont'd.)
Taxicabs
Equipment and operation .. 6.72.200 et seq.
See: TAXICABS
Urban services district
Fire protection and firefighting equipment 10.80.020 et seq.
See: FIRE PREVENTION AND PROTECTION
Vehicles and traffic..... 12.32.010 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Wrecker and towing services
Equipment and operation .. 6.80.410 et seq.
See: WRECKER AND TOWING SERVICES
ESCAPES AND ESCAPING
Metropolitan jail and workhouse
Escapes by prisoners..... 1.16.070
ETHICS
Procurement code
Ethics in public contracting ..... 4.48.010 et seq.
See: PROCUREMENT CODE
Standards of conduct, disclosure of interests, and enforcement ..... 2.222.010 et seq.
See: OFFICERS AND EMPLOYEES
EXCAVATIONS
General regulations ..... 13.20.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
EXPLOSIVES
Parks, recreational facilities and cemeteries 13.24.440
EXPUNGEMENT
Expungement of public records regarding violations 1.24.050

— F —

FACTORIES AND PLANTS
Rendering plants
Construction, facilities and operation 6.60.030
FACTORIES AND PLANTS (Cont'd.)
Definitions..... 6.60.010
Equipment and utensils 6.60.060
Handling diseased carcasses 6.60.090
Inspection authority
Right of entry 6.60.120
Permit required 6.60.020
Premises maintenance 6.60.040
Prohibited discharges 6.60.110
Reduction of animal matter 6.60.100
Reuse of containers..... 6.60.070
Sanitary conditions 6.60.050
Vehicles 6.60.080
FAIR EMPLOYMENT AND HOUSING PRACTICES.
See: PUBLIC PEACE, MORALS AND WELFARE
FAIRS
Board of fair commissioners
Additional duties 2.78.010
FARM TRACTOR
Defined 12.04.100
FARMERS' MARKET BOARD
Rules and regulations 2.107.010
FEES
Board of fire and building code appeals
Appeal procedures
Filing fee..... 2.80.090
Burglar and fire alarm systems
Disposition of fees..... 10.60.040
Commercial solicitors
Permit
Application contents; fees 6.64.060
Financial policies
Litter fee for individuals convicted of DUI 5.04.090
Horse-drawn carriages
Driver's permit
Expiration; issuance and replacement fee 12.54.144
Low speed vehicles
Certificate of public convenience and necessity
Application; information and fees required... 6.73.040
Issuance and denial; fees 6.73.050

FEES (Cont'd.)
Driver permit
Application; information and fees required . . . 6.73.120
Expiration; issuance and replacement fee 6.73.170
Metropolitan courts
Permissible use of DUI school fees collected . . 2.56.570
Permissible use of traffic safety school fees collected 2.56.540
Traffic safety school fee . . . 2.56.530
Metropolitan jail and workhouse
Fee for inmate's personal items 1.16.080
Other passenger vehicles for hire
Certification of public convenience and necessity
Application—Information and fees required 6.74.030
Findings—Issuance of certificate—Fees required 6.74.040
Transfers—Fee 6.74.080
Drivers' permits
Application; information and fees required . . . 6.74.110
Expiration; issuance and replacement fee 6.74.160
Pedicabs and pedal carriages
Certificate of public convenience and necessity
Application; information and fees required . . . 6.75.040
Issuance and denial; fees 6.75.050
Driver permit
Application; information and fees required . . . 6.75.120
Expiration; issuance and replacement fee 6.75.180
Planning commission . . . . . 2.136.010 et seq.
See: PLANNING COMMISSION
Police department
Photocopying fees for police reports 2.44.080
FEES (Cont'd.)
Public swimming pools
Inspection and licensing fees 10.48.070
Residential sanitary sewerage pumping systems
Fees and charges 15.34.030
Sewer rates and charges . . . . . 15.44.010 et seq.
See: WATER, SEWERS AND OTHER PUBLIC SERVICES
Sexually oriented businesses . 6.54.090
Solid fuel sales or hauling
Registration fees 6.68.140
Streets, sidewalks and other public ways
Fees, in-lieu contributions and other assessments, estimates or payments 13.02.010
Valet services
Valet parking operations and fees 12.41.080
Waste management
Disposal facilities, fees and charges . . . . . 10.20.300 et seq.
See: SOLID WASTE
Water rates and charges . . . . . 15.32.010 et seq.
See: WATER, SEWERS AND OTHER PUBLIC SERVICES
Water, sewers and other public services
Fees, in-lieu contributions and other assessments, estimates or payments 15.02.010
Zoning
Fees, in-lieu contributions and other assessments, estimates or payments 17.04.055
FENCES, WALLS AND ENCLOSURES
Dogs
Pen enclosures for dogs 8.12.110
Urban services district regulations
Street and sidewalk regulations
Barbed wire fences prohibited
Exceptions 13.32.120

FERRIES
Regulations filed with department of public works 12.80.020
User fees for metropolitan government ferries 12.80.010
FIBER OPTICS
Franchises for fiber optic communications services ..... 6.26.010 et seq.
See: COMMUNICATIONS
FILMS
Films and live entertainers ... 6.24.010 et seq.
See: AMUSEMENTS AND ENTERTAINERS
Mayor's office of film and special events ..... 2.62.010 et seq.
See: MAYOR
FINANCE
Affordable and workforce housing incentive grants. 2.213.010 et seq.
See: AFFORDABLE AND WORKFORCE HOUSING INCENTIVE GRANTS
Department of finance
Budget officer 2.24.030
Chief accountant..... 2.24.040
Collections officer..... 2.24.060
Department created
Divisions designated 2.24.010
Department of information systems
Consolidation of functions..... 2.24.120
Created
Transfer of functions . 2.24.110
Office of telecommunications
Additional powers and responsibilities .. 2.24.145
Created..... 2.24.135
Organization..... 2.24.140
Officers
Duties 2.24.115
Personnel 2.24.130
Recovery of costs 2.24.125
FINANCE (Cont'd.)
Website calendar for board and commission meetings 2.24.146
Director of finance
Powers and duties 2.24.020
Director of public property administration 2.24.080
Division of metropolitan audit..... 2.24.300
Division of public property administration
Guaranteed payment plan for superseded pension systems
Guaranteed payment account..... 2.24.480
Plan established 2.24.470
Metropolitan government real estate
Acquisition of real estate 2.24.240
Appraisal report required for metropolitan council approval . 2.24.225
Director of public property administration
Rule and regulation authority 2.24.220
Disposition of surplus property 2.24.250
Leasing or subleasing conditions 2.24.230
Organization and operation
Billboard lease agreement restrictions..... 2.24.211
Composition of division
Salary of director... 2.24.150
Inventory of public property and equipment 2.24.190
Land acquisition and disposal
Standard procedures 2.24.180

FINANCE (Cont'd.)
Public property
Leasing, rent collection, sale and disposal... 2.24.210
Maintenance responsibility.. 2.24.200
Sections and other units
Establishment authority 2.24.160
Functions
Assignment of employees' duties..... 2.24.170
Relocation assistance program
Administering agency 2.24.380
Program established
Statutory authority . 2.24.370
Metropolitan treasurer..... 2.24.050
Payroll section, payroll supervisor and assistant payroll supervisor 2.24.090
Purchasing agent 2.24.070
Title VI implementation plans and annual reports..... 2.24.103
Department of law
Representation of metropolitan government outside metropolitan government area
Reimbursement for expenses 2.40.040
Department of water and sewer services
Billings and collection manager 2.52.030
Domestic partner benefits .... 3.14.010 et seq.
See: DOMESTIC PARTNER BENEFITS
Financial policies
Depositories for metropolitan funds.... 5.08.010 et seq.
See: REVENUE AND FINANCE
Public art financing..... 5.10.010 et seq.
See: REVENUE AND FINANCE

FINANCE (Cont'd.)
Gulch Central Business Improvement District
Estimated costs and rate of levy; special assessment procedure. 2.176.080
Low speed vehicles; equipment and operation 6.73.270 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Metropolitan courts
Court costs ..... 2.56.050 et seq.
See: COURTS
Procurement code ..... 4.04.010 et seq.
See: PROCUREMENT CODE
Small business economic development incentive grants ..... 2.212.010 et seq.
See: SMALL BUSINESS ECONOMIC DEVELOPMENT INCENTIVE GRANTS
Streets, sidewalks and other public ways
Fees, in-lieu contributions and other assessments, estimates or payments 13.02.010
Tow-in lots
Accounting for funds and property received 12.72.070
Water, sewers and other public services
Fees, in-lieu contributions and other assessments, estimates or payments 15.02.010
Water and sewer service system
Council approval of fees and charges required..... 15.12.055
Water main tapping fees and charges
Water system capacity charge..... 15.20.045
Zoning
Fees, in-lieu contributions and other assessments, estimates or payments 17.04.055

FINES
General penalty and citations for violations
Failure to pay or secure a fine
Commitment to workhouse 1.24.040
Traffic violations
Fine schedules..... 12.84.010 et seq.
See: TRAFFIC AND MOTOR VEHICLES
FIRE DEPARTMENT
Access to vehicles..... 2.28.260
Ambulance operation rules and regulations..... 2.28.040
Assistant fire marshal
Right of entry for inspection 2.28.210
Course of instruction..... 2.28.240
Created
Membership qualifications. 2.28.220
Division of emergency ambulance and rescue service 2.28.030
Duties of members 2.28.250
Emergency assistance policies and procedures . 2.28.060
Employment status of members 2.28.230
Failure to comply with orders 2.28.180
Fire department positions 2.28.070
General services district fire protection services 2.28.020
Inspection of buildings
Right of entry..... 2.28.150
Investigation of fires
Recordkeeping..... 2.28.140
Laws and ordinances
Enforcement authority..... 2.28.130
Metropolitan employee benefit system generally. 3.08.010 et seq.
See: OFFICERS AND EMPLOYEES
Miscellaneous driving rules
Driving over fire hose 12.68.050
Following fire apparatus... 12.68.040
Municipal fire prevention commissioner
Fire marshal authority 2.28.120
FIRE DEPARTMENT (Cont'd.)
Obedience to orders of emergency ambulance and rescue service personnel..... 2.28.050
Orders to remedy dangerous conditions
Appeals..... 2.28.170
Personnel rules and regulations
Copies filed as public records 2.28.090
Purpose and applicability .. 2.28.080
Police powers of fire marshal 2.28.160
Presentation of gun and badge to police-commissioned fire department retirees.. 2.28.100
Recognition of citizens' organizations assisting fire department programs..... 2.28.110
Use of the department of public works' hazardous materials response vehicles for fire prevention, firefighting and the containment of hazardous materials 2.28.111
Vehicles and traffic regulations
Obedience to enforcement officers 12.08.060
Traffic direction and enforcement authority of police and fire department officials... 12.08.050
FIRE HYDRANTS
Private facilities
Private fire hydrants ..... 15.68.010 et seq.
See: WATER, SEWERS AND OTHER PUBLIC SERVICES
FIRE PREVENTION AND PROTECTION
Board of fire and building code appeals ..... 2.80.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Burglar and fire alarm systems ..... 10.60.010 et seq.
See: ALARMS

FIRE PREVENTION AND PROTECTION (Cont'd.)
- Fire department
  - Use of department of public works' hazardous materials response vehicles 2.28.111
- Fire prevention code
  - Amendments 10.64.012
  - Application 10.64.014
  - Code adopted 10.64.010
  - Emergency health orders, enforcement 10.64.011
  - Fee schedule 10.64.018
  - Hazardous substances 10.64.015
  - ITM reports
    - Failure of service providers to submit within designated timeframe 10.64.023
  - No-smoking regulations
    - No-smoking signs
      - Authorized when 10.64.030
      - Display required when 10.64.040
    - Prohibited smoking areas
      - Exceptions 10.64.024
  - Open burning 10.64.017
  - Penalty 10.64.016
  - Permit
    - Failure to obtain—Fees tripled 10.64.020
    - Failure to submit application within designated timeframe—Expedite fees 10.64.019
    - Issuance 10.64.013
    - Suspension or revocation 10.64.022
    - Transferability 10.64.021
- Fires and lighted cigarettes
  - Parks, recreational facilities and cemeteries 13.24.160
- Metropolitan Nashville Airport Authority ..... 2.60.450 et seq.
  - See: AVIATION AND AIRCRAFT

FIRE PREVENTION AND PROTECTION (Cont'd.)
- Private facilities
  - Private fire hydrants ..... 15.68.010 et seq.
    - See: WATER, SEWERS AND OTHER PUBLIC SERVICES
  - Sprinkler systems for fire protection ..... 15.24.010 et seq.
    - See: WATER, SEWERS AND OTHER PUBLIC SERVICES
- Trailer courts 10.40.120
- Urban services district
  - Fire protection and firefighting equipment
    - Additional functions and services to include fire protection 10.80.010
    - Damaging or removing firefighting equipment prohibited 10.80.020

FIREARMS AND OTHER WEAPONS
- Discharging weapons 11.12.080
- Metropolitan Nashville Airport Authority 2.60.200
- Parks, recreational facilities and cemeteries 13.24.440
- Police department
  - Presentation of gun and badge to retiring officers 2.44.110
  - Special police commissions
    - Handgun permits 2.44.090
- Urban services district
  - Carrying certain weapons prohibited
    - Exceptions 11.36.110
  - Dealer's records 11.36.030
  - Definitions 11.36.010
  - Disposition of confiscated weapons 11.36.120
  - False information
    - Dealer's license Purchasing records ... 11.36.050
  - Manufacturer's or dealer's license
    - Application

FIREARMS AND OTHER WEAPONS (Cont'd.)
Fee
Revocation 11.36.020
Pistol sales
Notice to police
Delivery requirements 11.36.040
Possession prohibited by certain persons..... 11.36.070
Removal or alteration of manufacturer's identification number. 11.36.090
Sale prohibited to certain persons 11.36.060
Sale to minors prohibited .. 11.36.080
Stolen firearms 11.36.100
FIRES
Urban services district regulations
Street and sidewalk regulations
Burning leaves or trash prohibited 13.32.150
Dumping fires or burning cinders prohibited 13.32.140
FIREWORKS
Appointment of attorney required for out-of-county residents.. 10.68.050
Bond required..... 10.68.030
Conflict of provisions 10.68.080
Financial responsibility required..... 10.68.040
Fireworks defined
Labeling required..... 10.68.010
Parks, recreational facilities and cemeteries 13.24.440
Sales regulations 10.68.060
Seizure authorized when 10.68.070
Use restrictions
Permits granted when..... 10.68.020
Violation and penalty 10.68.090
FISHING
Commercial fishing
Parks, recreational facilities and cemeteries 13.24.420
Parks, recreational facilities and cemeteries 13.24.170
FLAMMABLE LIQUID
Defined 12.04.105
FLIES
Rodents, insects and other pests ..... 10.32.010 et seq.
See: PESTS AND PEST CONTROL
FLOODPLAIN OVERLAY DISTRICT
Zoning regulations ..... 17.36.170 et seq.
See: ZONING (Title 17)
FLOODS AND FLOODING
Flood control regulations..... 16.56.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Stormwater management
Notification to property owners upon amendments to flood maps..... 15.64.230
FOOD AND FOOD STORAGE
Dogs
Pet dogs in outdoor dining areas at restaurants ... 8.04.200
Dry warehouses for storage of food
Definitions..... 10.08.010
Disposition of food unfit for human consumption..... 10.08.040
Permit required 10.08.020
Records..... 10.08.030
Industrial waste discharges
Discharges to publicly owned treatment works
Control of fats, oils and grease (FOG) discharges
Food service establishments... 15.60.125
Mass gatherings
Food service plans and establishments..... 10.44.070
Rodents, insects and other pests
Buildings in which foodstuffs are stored.. 10.32.030
Urban services district regulations
Curb service of food or merchandise
Regulations 13.32.160
FOREIGN TRADE ZONES
Approval of agreements..... 6.14.020

FOREIGN TRADE ZONES (Cont'd.)
Establishment
Management 6.14.010
FORESTRY
Urban forester
Definitions 2.104.010
Duties under zoning ordinance 2.104.090
Educational functions 2.104.100
Maintenance 2.104.040
Permitting of arborists 2.104.070
Planting 2.104.030
Removal of hazard trees ... 2.104.050
Tree advisory committee ... 2.104.110
Tree permits 2.104.060
Urban forester 2.104.020
FOWL. See: ANIMALS AND FOWL
FRANCHISES
Cable communications franchise and regulations ..... 6.08.005 et seq.
See: COMMUNICATIONS
Financial policies
Land leases or franchises .. 5.04.030
Franchises for fiber optic communications services ..... 6.26.010 et seq.
See: COMMUNICATIONS
FRAUD
Auctions and auctioneers
Urban services district regulations
False statements 6.84.050
Misrepresentation by auctioneer 6.84.070
False identification 11.12.030
Health department
False or misleading statements in documents or reports . 2.36.160
Unauthorized reproduction or alteration of department documents 2.36.150
Hotels and rooming houses
Registration under fictitious name prohibited 6.28.020
FRAUD (Cont'd.)
Offenses by or against public officers and government
Giving false information
False alarms 11.04.080
Registration of convicts
Failing or refusing to register
Giving false information 1.20.030
Urban services district
Firearms and other weapons
False information
Dealer's license
Purchasing records . 11.36.050
Wrecker and towing services
Making false statement 6.80.130
FREIGHT
Freight loading zones ..... 12.48.040 et seq.
See: LOADING AND UNLOADING
FUEL AND GAS
Metropolitan Nashville Airport Authority ..... 2.60.450 et seq.
See: AVIATION AND AIRCRAFT
Sale, use or consumption of solid and liquid fuels
Air pollution control 10.56.200
Solid fuel sales or hauling
Application
Notice of approval or disapproval
Issuance of permit 6.68.070
Notice of changes 6.68.040
Bond required 6.68.050
Certified registration sticker 6.68.130
Change in supply source ... 6.68.160
Definitions 6.68.010
Display of vehicle information 6.68.120
Expiration of permit 6.68.080
Hauling emergency supply for own use 6.68.020
Inspection authority
Right of entry 6.68.170
Maximum load for coal trucks 6.68.150
Permit
Conditions 6.68.060
Refusal to grant
Revocation 6.68.110

FUEL AND GAS (Cont'd.)
Register required 6.68.100
Required 6.68.030
Registration fees 6.68.140
Special permits issued when 6.68.090
Trailer courts
Liquefied petroleum gas ... 10.40.110
FUNDS
Combat auto theft (CAT) program ..... 2.44.180 et seq.
See: POLICE DEPARTMENT
Department of codes administration
In-service training fund 2.20.070
Department of law
Allocation of funds 2.40.180
Depositories for metropolitan funds ..... 5.08.010 et seq.
See: REVENUE AND FINANCE
Financial policies
General provisions
Limitation on use of metropolitan government funds for signage 5.04.100
Historic preservation grant program ..... 2.215.010 et seq.
See: HISTORIC PRESERVATION GRANT PROGRAM
Incomplete infrastructure
Completion using public funds 10.90.020
Metropolitan courts
Division of probation
Utilization of funds 2.56.130
Personnel regulations
Plan qualification
Prohibition against diversion of trust funds 3.30.120
Procurement code ..... 4.04.010 et seq.
See: PROCUREMENT CODE
Tow-in lots
Accounting for funds and property received 12.72.070
FUNERALS
Miscellaneous driving rules
Drivers in processions 12.68.010
FUNERALS (Cont'd.)
Driving through funeral processions 12.68.030
Funeral procession identification 12.68.020
Pauper burials 2.36.090

— G —

GAMBLING
Disorderly house
Prostitution, gambling and rowdiness prohibited.. 11.12.060
Metropolitan Nashville Airport Authority..... 2.60.190
Parks, recreational facilities and cemeteries 13.24.450
GAMES
Parks, recreational facilities and cemeteries 13.24.180
GARAGES
Parking
Blocking driveways or garages 12.40.130
GARBAGE AND TRASH
Industrial waste discharges
Waste from garbage grinders prohibited
Exceptions 15.60.120
Mass gatherings
Refuse storage, collection and disposal 10.44.080
Rodents, insects and other pests ..... 10.32.010 et seq.
See: PESTS AND PEST CONTROL
Trailer courts
Refuse storage, collection and disposal 10.40.130
Urban services district regulations
Street and sidewalk regulations
Burning leaves or trash prohibited 13.32.150
Waste management..... 10.20.010 et seq.
See: SOLID WASTE
GAS. See: FUEL AND GAS

GAS/MECHANICAL
Board of mechanical, plumbing, and electrical examiners and appeals .. 2.76.010 et seq.
See: BOARD OF MECHANICAL, PLUMBING, AND ELECTRICAL EXAMINERS AND APPEALS
Department of codes administration
Gas/mechanical inspection staff 2.20.110
Gas/mechanical code..... 16.16.180 et seq.
See: BUILDINGS AND CONSTRUCTION
GENERAL SERVICES
Department of general services
Created
Organization and membership..... 2.32.010
Department powers, functions and personnel 2.32.030
Director
Determination of section and unit functions .. 2.32.040
Powers, duties and compensation 2.32.020
Fleet electrification program 2.32.065
Green building standards .. 2.32.070
Mayor's authority to resolve controversies . 2.32.050
Renewable energy portfolio standard program 2.32.080
Use of metropolitan government vehicles.. 2.32.060
General services district fire protection services 2.28.020
GLASS
Miscellaneous driving rules
Putting glass, nails or other injurious materials on highway
Clearing accident wreckage..... 12.68.150
GLUE AND RELATED SUBSTANCES
Minors, offenses by or against
Sale and use restrictions ... 11.28.050
GOLF CARTS AND GOLF COURSES
Miscellaneous driving rules
Golf cart requirements..... 12.68.100
GRAFFITI
Definitions 11.26.010
Graffiti prohibition..... 11.26.020
Parental civil liability 11.26.050
Penalty..... 11.26.060
Possession of graffiti implements by minors prohibited..... 11.26.030
Possession of graffiti implements prohibited in designated public places 11.26.040
Reward for information leading to arrest and conviction of violator ... 11.26.055
Sale of graffiti implements to minors prohibited 11.26.045
Severability 11.26.070
GRANTS
Cable communications franchise and regulations
Applications for grant, renewal, or modification of franchises..... 6.08.040
Grant of franchise 6.08.030
Fiber optic communications services, franchises for
Grant of franchise 6.26.030
Financial policies
Approval of certain grant contracts..... 5.04.076
Grants made to nonprofit organizations 5.04.070
Merit-based grant program 5.04.130
Historic preservation grant program..... 2.215.010 et seq.
See: HISTORIC PRESERVATION GRANT PROGRAM
Metropolitan council
Approval of grants..... 2.04.050

GRANTS (Cont'd.)
Small business economic development incentive grants ..... 2.212.010 et seq.
See: SMALL BUSINESS ECONOMIC DEVELOPMENT INCENTIVE GRANTS
GREEN BUILDING PRACTICES
Department of general services
Green building standards .. 2.32.070
Sustainable development design standards
LEED™ green building rating system
Adopted..... 16.60.010
See: BUILDINGS AND CONSTRUCTION
GREENWAY AND OPEN SPACE COMMISSION
Additional authority..... 2.154.040
Advisory committee..... 2.154.020
Duties and responsibilities ... 2.154.030
Establishment/membership... 2.154.010
Grant agreements 2.154.050
Reports to council..... 2.154.060
Staffing 2.154.015
GREENWAY OVERLAY DISTRICT
Zoning regulations ..... 17.36.130 et seq.
See: ZONING (Title 17)
GULCH CENTRAL BUSINESS IMPROVEMENT DISTRICT
Annual budget 2.176.070
Definitions 2.176.040
District created—Boundary .. 2.176.010
District management corporation..... 2.176.050
Dissolution of 2.176.090
Powers..... 2.176.060
Estimated costs and rate of levy; special assessment procedure 2.176.080
Liberal construction..... 2.176.030
Purposes and mission 2.176.020
GUNS. See: FIREARMS AND OTHER WEAPONS

— H —

HANDBILLS. See: CIRCULARS AND HANDBILLS
HANDGUNS. See: FIREARMS AND OTHER WEAPONS
HANDICAPPED PARKING
Handicapped parking spaces . 12.40.090
Residential on-street handicapped parking space..... 12.40.095
HANDICAPPED PERSONS
Blind pedestrians..... 12.52.070
Effective communication with individuals with disabilities in metropolitan government programs and services..... 2.214.010 et seq.
See: PROGRAMS AND POLICIES
Health department
Medicine for indigent persons 2.36.080
HAZARDS AND HAZARDOUS WASTES
Fire department
Use of the department of public works' hazardous materials response vehicles for fire prevention, firefighting and the containment of hazardous materials... 2.28.111
Hazardous air pollutants 10.56.210
Industrial waste discharges
Discharges to publicly owned treatment works
Hazardous waste discharge..... 15.60.082
Radioactive waste prohibited
Exceptions 15.60.150
Metropolitan Nashville Airport Authority..... 2.60.450 et seq.
See: AVIATION AND AIRCRAFT
Placing hazardous or offensive substances in public places 11.24.070

HAZARDS AND HAZARDOUS WASTES (Cont'd.)
Transport of hazardous materials on public streets prohibited 13.08.070
Urban forester
Removal of hazard trees ... 2.104.050
Waste management
Urban services district—Waste collection and disposal
Hazardous, pathogenic and radioactive waste 10.20.240
HEALTH AND SAFETY
Air pollution control ..... 10.56.010 et seq.
See: AIR POLLUTION
Board of licensing for adult entertainment and safety 6.54.020
Burglar and fire alarm systems ..... 10.60.010 et seq.
See: ALARMS
Control of excessive vegetation ..... 10.28.010 et seq.
See: VEGETATION
Disease control ..... 10.16.010 et seq.
See: DISEASES AND DISEASE CONTROL
Dry warehouses for storage of food ..... 10.08.010 et seq.
See: FOOD AND FOOD STORAGE
Fire prevention code ..... 10.64.010 et seq.
See: FIRE PREVENTION AND PROTECTION
Fireworks ..... 10.68.010 et seq.
See: FIREWORKS
High weeds and debris ..... 10.26.010 et seq.
See: VEGETATION
Housing sanitation ..... 10.36.010 et seq.
See: HOUSING
Littering ..... 10.24.010 et seq.
See: LITTERING
Mass gatherings ..... 10.44.010 et seq.
See: ASSEMBLIES
Metropolitan Nashville Airport Authority 2.60.250
Mineral, spring and other drinking water ..... 10.12.010 et seq.
See: WATER SUPPLY AND DISTRIBUTION
HEALTH AND SAFETY (Cont'd.)
Neighborhood revitalization
Incomplete infrastructure .. 10.90.010 et seq.
See: INCOMPLETE INFRASTRUCTURE
Vacant property review commission ..... 10.86.010 et seq.
See: NEIGHBORHOODS
Office of family safety ..... 2.61.010 et seq.
See: OFFICE OF FAMILY SAFETY
Prohibition of smoking in certain age-restricted venues ..... 10.19.010 et seq.
See: SMOKING
Prohibition of smoking in metropolitan buildings .. 10.18.010 et seq.
See: SMOKING
Public swimming pools ..... 10.48.010 et seq.
See: SWIMMING POOLS
Quarrying and mining operations ..... 10.52.010 et seq.
See: MINES AND MINING
Radon regulation in metropolitan government buildings ... 10.57.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Removal of dead animals ..... 10.70.010 et seq.
See: ANIMALS AND FOWL
Rodents, insects and other pests ..... 10.32.010 et seq.
See: PESTS AND PEST CONTROL
Scrap tire management ..... 10.30.010 et seq.
See: SCRAP TIRES
Trailer courts ..... 10.40.010 et seq.
See: TRAILER COURTS
Urban services district
Fire protection and firefighting equipment 10.80.010 et seq.
See: FIRE PREVENTION AND PROTECTION
Hospitals and physicians... 10.72.010 et seq.
See: HOSPITALS AND PHYSICIANS

HEALTH AND SAFETY (Cont'd.)
Vital statistics ..... 10.04.010 et seq.
See: VITAL STATISTICS
Waste management..... 10.20.010 et seq.
See: SOLID WASTE
HEALTH DEPARTMENT
Computing ratios of personnel and facilities for numbers of persons.. 2.36.050
Consistency with federal and state law 2.36.030
Definitions 2.36.010
Department powers and duties generally 2.36.020
Enforcement
Procedures other than prosecution or compulsory means.... 2.36.120
False or misleading statements in documents or reports..... 2.36.160
Inspection
Charitable institutions, jails and other metropolitan institutions confining persons 2.36.070
Premises providing services to children ... 2.36.060
Interfering with or obstructing department personnel..... 2.36.180
Liberal construction of provisions..... 2.36.040
Medicine for indigent persons..... 2.36.080
Nuisances designated
Abatement authority..... 2.36.100
Pauper burials..... 2.36.090
Records and proceedings
Public inspection authorized when 2.36.130
Removal of dead animals
Delivery to board of health 10.70.030
Review of decisions of the chief medical director ... 2.36.140
Seizure, embargo, condemnation and disposal of prohibited materials 2.36.110
Tearing down or mutilating official notices 2.36.170
HEALTH DEPARTMENT (Cont'd.)
Unauthorized reproduction or alteration of department documents 2.36.150
Violation of orders prohibited 2.36.190
HEARINGS
Air pollution control 10.56.120
Board of fire and building code appeals 2.80.060
Board of property standards and appeals
Hearing petitions and procedures..... 2.88.060
Booting services ..... 6.81.090 et seq.
See: BOOTING SERVICES
Commercial solicitors
Permit
Appeals for denial or revocation—Hearings 6.64.160
Department of codes administration
Metropolitan administrative hearing officer 2.20.130
Quarrying and mining operations
Regulations and procedures for hearings 10.52.050
Valet services
Hearing before suspension, revocation or probation and after refusal to renew license or permit..... 12.41.060
Wrecker and towing services. 6.80.610 et seq.
See: WRECKER AND TOWING SERVICES
HELICOPTERS. See: AVIATION AND AIRCRAFT
HISTORIC OVERLAY DISTRICTS
Zoning regulations ..... 17.36.100 et seq.
See: ZONING (Title 17)
HISTORIC PRESERVATION GRANT PROGRAM
Definitions 2.215.010
Development of rules and regulations 2.215.040

HISTORIC PRESERVATION GRANT PROGRAM (Cont'd.)
Grants subject to funding availability 2.215.030
Historic preservation grants .. 2.215.020
HISTORIC ZONING COMMISSION STAFF
Historic zoning administrator 2.130.010
Historic zoning commission staff 2.130.020
HISTORICAL COMMISSION
Appointment and term of office of members 2.128.030
Cemeteries
Operation and maintenance responsibilities 13.24.050
County historian, qualifications and duties 2.128.070
Established..... 2.128.010
Executive director and staff .. 2.128.050
Historic zoning commission.. 17.40.400 et seq.
See: ZONING (Title 17)
Officers and bylaws
Authority to purchase property and other powers..... 2.128.040
Powers and duties 2.128.060
Purpose of the commission... 2.128.020
HITCHHIKING
Parks, recreational facilities and cemeteries
Prohibited 13.24.350
HOGS. See: ANIMALS AND FOWL
HOMELESS PERSONS
Nashville Davidson County Continuum of Care Homelessness Planning Council ..... 2.144.020 et seq.
See: METROPOLITAN SOCIAL SERVICES COMMISSION
HOMELESS SERVICES, OFFICE OF
Creation..... 2.63.010
Director..... 2.63.040
Duties of office..... 2.63.020
Personnel 2.63.030
HORSE-DRAWN CARRIAGES
Accidents 12.54.300
Approved routes and zones... 12.54.310
HORSE-DRAWN CARRIAGES (Cont'd.)
Certificate of pubic convenience and necessity
Horse-drawn carriage service
Appeals 12.54.090
Application information and fees 12.54.030
Change of ownership or address..... 12.54.060
Disciplinary action..... 12.54.070
Insurance required 12.54.100
Issuance and denial 12.54.040
Limitations and amendments..... 12.54.050
Operation of horse-drawn carriage after suspension 12.54.080
Records and reports 12.54.110
Required and term 12.54.020
Complaint procedure..... 12.54.350
Definitions 12.54.010
Driver's permit
Alcohol in horse-drawn carriage..... 12.54.210
Application
Approval or disapproval. 12.54.141
Information and fees required 12.54.130
Conduct of drivers..... 12.54.200
Criminal background investigation..... 12.54.140
Expiration; issuance and replacement fee..... 12.54.144
Fees 12.54.150
Hospitality training program; participation required 12.54.175
Issuance
Contents 12.54.142
Permit to be posted..... 12.54.170
New application after denial..... 12.54.143
Permit required
Violations and term 12.54.120
Rates of fare..... 12.54.230
Return of passengers' property 12.54.220
Revocation of a valid driver's license..... 12.54.146

HORSE-DRAWN CARRIAGES (Cont'd.)
Suspension, revocation, and appeal 12.54.145
Unpermitted drivers 12.54.190
Enforcement by police department 12.54.330
Fees 12.54.280
Horses, carriages and equipment
Animal working conditions 12.54.270
Carriage and equipment ... 12.54.260
Examination of horses 12.54.250
Requirements for horses in service 12.54.240
Hours of operation 12.54.320
Non-transferability 12.54.290
Penalties 12.54.340
HOSPITALS AND PHYSICIANS
Mass gatherings
Medical care and facilities . 10.44.140
Metropolitan Nashville General Hospital ..... 2.164.010 et seq.
See: METROPOLITAN NASHVILLE GENERAL HOSPITAL
Smoking in metropolitan buildings, prohibition of
Smoking on and near hospital property prohibited 10.18.045
Urban services district
Police report required when 10.72.010
HOTELS/MOTELS
Beer and alcoholic beverages of less than eight percent 7.08.240
Hotel occupancy privilege tax ..... 5.12.010 et seq.
See: REVENUE AND FINANCE
Hotels and rooming houses
Hourly room rental limitations 6.28.040
Payments 6.28.050
Register requirements..... 6.28.010
Registration under fictitious name prohibited 6.28.020
Short term rental
Appeals board..... 6.28.035
HOTELS/MOTELS (Cont'd.)
Property permit 6.28.030
HOURS OF OPERATION
Auctions and auctioneers
Urban services district regulations
Prohibited auction hours 6.84.040
Buildings and construction
Building permits
Approved permits and construction hours signs
Posted at premises 16.28.230
Excavations and obstructions. 13.20.060
Horse-drawn carriages 12.54.320
Noise and amplified sound
Construction noise
Outdoor construction hours..... 9.30.010
Parks, recreational facilities and cemeteries 13.24.080
Sexually oriented businesses . 6.54.120
Solicitations
Commercial solicitors
Solicitation restricted to daylight hours..... 6.64.035
Street cleaning
Restricted hours of operation 13.08.060
HOUSE TRAILER
Defined 12.04.125
HOUSING
Affordable and workforce housing incentive grants. 2.213.010 et seq.
See: AFFORDABLE AND WORKFORCE HOUSING INCENTIVE GRANTS
Drug related activity
Termination of public housing tenancy 11.16.060
Fair employment and housing practices ..... 11.20.010 et seq.
See: PUBLIC PEACE, MORALS AND WELFARE
Housing sanitation
Deemed owners
Compliance required 10.36.040
Definitions..... 10.36.010
Sanitation requirements
Abatement notice 10.36.020

HOUSING (Cont'd.)
Vacation of buildings 10.36.030
Urban services district regulations
House numbering systems . 13.28.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
HOUSING AND HOME FINANCE
Housing and home finance agency requirements
Conformance with federal regulations required .. 2.172.010
HUNTING
Metropolitan Nashville Airport Authority..... 2.60.200
Parks, recreational facilities and cemeteries
Hunting and trapping wildlife
Carrying firearms 13.24.470

— I —

ICE. See: SNOW AND ICE
IDENTIFICATION
Booting services
Employees
Permit required; fee; identification badge 6.81.080
Commercial solicitors
Identification badge ..... 6.64.050 et seq.
Debtors' names
Use in public announcements prohibited 11.16.070
False identification..... 11.12.030
Funeral procession identification..... 12.68.020
Low speed vehicles
Equipment and operation
Vehicle to display; identification..... 6.73.290
Other passenger vehicles for hire
Equipment; vehicle to display identification . 6.74.210
Pedicabs and pedal carriages
Driver permit
Pedicab driver photo identification and uniform 6.75.260
IDENTIFICATION (Cont'd.)
Equipment and operation
Vehicle to display identification..... 6.75.310
Urban services district
Firearms and other weapons
Removal or alteration of manufacturer's identification number..... 11.36.090
IMPACT OVERLAY DISTRICT
Zoning regulations ..... 17.36.360 et seq.
See: ZONING (Title 17)
IMPOUNDMENT
Animal control regulations, generally
Impounded animals..... 8.20.080
Impounded fowl 8.20.070
Animals..... 8.04.100 et seq.
See: ANIMALS AND FOWL
Impoundment of vehicles 12.08.150
Vicious dogs ..... 8.08.040 et seq.
See: ANIMALS AND FOWL
INCINERATORS
Air pollution control 10.56.230
INCOMPLETE INFRASTRUCTURE
Completion of necessary public infrastructure..... 10.90.010
Completion using public funds..... 10.90.020
Sunset..... 10.90.030
INDECENCIES. See: OBSCENITIES AND INDECENCIES
INDEMNIFICATION
Cable communications franchise and regulations 6.08.120
Fiber optic communications services, franchises for.. 6.26.220
INDIGENT PERSONS
Health department
Medicine for indigent persons 2.36.080

INFORMATION SYSTEMS
Department of finance
Department of information systems ..... 2.24.110 et seq.
See: FINANCE

IN-LINE SKATES. See also: SCOOTERS, ROLLER SKATES AND IN-LINE SKATES
Defined 12.04.137

INSECTS
Rodents, insects and other pests ..... 10.32.010 et seq.
See: PESTS AND PEST CONTROL

INSPECTIONS
Assistant fire marshal
Right of entry for inspection 2.28.210
Beer permit board
Metropolitan beer permit inspectors..... 7.04.060
Building inspections ..... 16.32.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Department of codes administration
Building inspection staff... 2.20.100
Gas/mechanical inspection staff 2.20.110
Plumbing inspection staff.. 2.20.120
Equipment inspection policy . 2.202.010 et seq.
See: EQUIPMENT
Fire department
Inspection of buildings
Right of entry 2.28.150
Health department
Inspection
Charitable institutions, jails and other metropolitan institutions confining persons .. 2.36.070
Premises providing services to children. 2.36.060
Records and proceedings
Public inspection authorized when . 2.36.130
Hotel occupancy privilege tax records 5.12.070

INSPECTIONS (Cont'd.)
Low speed vehicles
Equipment and operation
Inspection and maintenance of vehicles
Compliance required . 6.73.320
Other passenger vehicles for hire
Equipment
Inspection and maintenance of vehicles—Compliance required 6.74.220
Inspection compliance decal required—Maintenance equipment..... 6.74.240
Tests and inspections of vehicles 6.74.250
Pedicabs and pedal carriages
Equipment and operation
Inspection and maintenance of vehicles
Compliance required . 6.75.350
Public swimming pools 10.48.110
Rendering plants 6.60.120
Rental inspections..... 16.33.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Solid fuel sales or hauling.... 6.68.170
Sprinkler systems for fire protection 15.24.080
Taxicabs
Inspection and maintenance of vehicles..... 6.72.240
Trailer courts..... 10.40.030
Urban services district regulations
Pawnbrokers, secondhand dealers and junk dealers
Automobile dealers 6.100.050
Book sales 6.100.060
Bottle dealers 6.100.070
Inspection..... 6.100.030
Jewelry..... 6.100.080
Metal items 6.100.090
Plumbing material..... 6.100.100

INSPECTIONS (Cont'd.)
Weights and measures..... 6.76.090 et seq.
See: WEIGHTS AND MEASURES
INSTITUTIONAL OVERLAY DISTRICT
Zoning regulations ..... 17.36.330 et seq.
See: ZONING (Title 17)
INSTRUMENTS
Advertising signs and other advertising methods
Loudspeakers and noisy instruments prohibited
Exceptions 6.04.090
INSURANCE
Cable communications franchise and regulations 6.08.120
Excavations and obstructions. 13.20.050
Fiber optic communications services, franchises for.. 6.26.210
Horse-drawn carriage service 12.54.100
Low speed vehicles
Certificate of public convenience and necessity
Insurance required 6.73.070
Other passenger vehicles for hire
Certification of public convenience and necessity
Liability insurance required..... 6.74.050
Parades..... 12.56.070
Pedicabs and pedal carriages
Certificate of public convenience and necessity
Insurance required 6.75.070
Personnel regulations
Life insurance and medical care for nonmembers . 3.44.010 et seq.
See: OFFICERS AND EMPLOYEES
Life insurance benefits..... 3.20.010 et seq.
See: OFFICERS AND EMPLOYEES
Procurement code 4.20.030
Taxicabs 6.72.210
Valet services
Insurance requirements 12.41.050
INSURANCE (Cont'd.)
Wrecker and towing services
Emergency wrecker service
Liability insurance required..... 6.80.530
Liability insurance required 6.80.140
INTERFERING
Health department
Interfering with or obstructing department personnel. 2.36.180
Parades, interfering with or obstructing 12.56.120
INTERROGATIONS. See: CUSTODY AND INTERROGATIONS
INVENTORY
Department of finance
Division of public property administration
Organization and operation
Inventory of public property and equipment 2.24.190
INVESTIGATIONS
Fire department
Investigation of fires
Recordkeeping 2.28.140
Horse-drawn carriages
Driver's permit
Criminal background investigation 12.54.140
Low speed vehicles
Driver permit
Criminal background investigation 6.73.130
Metropolitan courts
Parole and probation office
Investigation of petitioners for suspended sentences or paroles
Reports 2.56.180
Other passenger vehicles for hire
Drivers' permits
Criminal background investigation 6.74.120

INVESTIGATIONS (Cont'd.)
Pedicabs and pedal carriages
Driver permit
Fingerprint-based criminal background investigation 6.75.130

— J —

JAILS. See: PRISONS AND PRISONERS
JEWELRY
Urban services district regulations
Auctions sales of automobiles or jewelry ..... 6.88.010 et seq.
See: AUCTIONS AND AUCTIONEERS
Pawnbrokers, secondhand dealers and junk dealers..... 6.100.080
JUDGMENTS
Department of law ..... 2.40.050 et seq.
See: LAW, DEPARTMENT OF
JUNK AND JUNK DEALERS
Urban services district regulations
Pawnbrokers, secondhand dealers and junk dealers..... 6.100.010 et seq.
See: PAWNBROKERS AND SECONDHAND DEALERS
JUVENILES. See: MINORS

— L —

LAKES
Littering..... 10.24.010 et seq.
See: LITTERING
LAND
Department of finance
Division of public property administration
Land acquisition and disposal
Standard procedures .. 2.24.180
Financial policies
Land leases or franchises .. 5.04.030
Littering..... 10.24.010 et seq.
See: LITTERING
LANDSCAPING
Landscaping, buffering and tree requirements..... 17.24.010 et seq.
See: ZONING (Title 17)
LAUNDRY OPERATIONS
Dryer and vent pipe requirements
Air pollution control..... 10.56.180
LAW, DEPARTMENT OF
Administrative memorandums of understanding 2.40.200
Allocation of funds..... 2.40.180
Appointment of employees... 2.40.170
Assistant metropolitan attorneys 2.40.020
Control of department
Metropolitan attorney powers and duties
Docket of suits 2.40.010
Court stenographer and brief printer..... 2.40.030
Defense counsel to employees
Conditions and procedures. 2.40.130
Delinquent tax reports transmitted to department 2.40.080
Direction
Functions and divisions designated 2.40.150
Division of tax litigation 2.40.090
Eligibility for employment contracts
Term of contract 2.40.070
Employee defined..... 2.40.120
Employee indemnification authorized when..... 2.40.140
Employee safety program
Division of employee safety
Appointment of employees..... 2.40.220
Compliance with occupational health and safety standards..... 2.40.230
Created..... 2.40.210
Functions of division.... 2.40.240
Reports and recommendations on safety 2.40.260

LAW, DEPARTMENT OF (Cont'd.)
Support of safety program 2.40.250
Execution of bonds for costs, judgments and other actions 2.40.050
Positions and personnel 2.40.160
Powers, duties and responsibilities 2.40.190
Reporting significant litigation and judgments. 2.40.115
Representation of metropolitan government outside metropolitan government area
Reimbursement for expenses 2.40.040
Retired law enforcement animals. 2.44.085
Settlement of claims
Against metropolitan government and its employees 2.40.100
Damage to metropolitan government property.. 2.40.110
Updating statutory references in Metropolitan Code of laws 2.40.060
LAWS, ORDINANCES, AND RESOLUTIONS
Fire department
Laws and ordinances
Enforcement authority .. 2.28.130
Pedicabs and pedal carriages
Equipment and operation
Compliance with other laws 6.75.540
LEADERSHIP IN ENERGY AND ENVIRONMENTAL DESIGN
Sustainable development design standards
LEED™ green building rating system
Adopted 16.60.010
See: BUILDINGS AND CONSTRUCTION
LEASES AND LEASING
Department of finance
Division of public property administration
Metropolitan government real estate
Leasing or subleasing conditions 2.24.230
Organization and operation
Billboard lease agreement restrictions..... 2.24.211
Public property
Leasing, rent collection, sale and disposal... 2.24.210
Financial policies
Equipment or automobile leases 5.04.020
Land leases or franchises .. 5.04.030
Tow-in lots
Payment of monthly rental. 12.72.060
Property lease authorization 12.72.050
LEWD AND LASCIVIOUS
Indecent exposure 11.16.020
Lewd conduct in commercial establishments 11.16.040
Lewd or disruptive behavior on or around school grounds 11.12.050
LIABILITIES
Domestic partner benefits
Tax liability..... 3.14.050
Graffiti
Parental civil liability..... 11.26.050
Liability for damage to highways or structures .. 12.36.120
Metropolitan Nashville Airport Authority..... 2.60.040
Other passenger vehicles for hire
Certification of public convenience and necessity
Liability insurance required 6.74.050
Railroads and grade crossings
Liability limitations concerning signal lights and

appurtenances 12.76.120
LIBRARIES
Library property
Unauthorized use
Defacement 11.24.020
LICENSES AND PERMITS
Administration and procedures
Permits and certificates of compliance ..... 17.40.520 et seq.
See: ZONING (Title 17)
After hours establishments ... 6.06.020 et seq.
See: ALCOHOL AND ALCOHOLIC BEVERAGES
Air conditioning and refrigeration
Application for permit 15.56.030
Air pollution control ..... 10.56.020 et seq.
See: AIR POLLUTION
Animals ..... 8.04.030 et seq.
See: ANIMALS AND FOWL
Beer and alcoholic beverages of less than eight percent 7.08.010 et seq.
See: ALCOHOL AND ALCOHOLIC BEVERAGES
Beer permit board ..... 7.04.010 et seq.
See: ALCOHOL AND ALCOHOLIC BEVERAGES
Booting services ..... 6.81.010 et seq.
See: BOOTING SERVICES
Building permits ..... 16.28.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Burglar and fire alarm systems ..... 10.60.010 et seq.
See: ALARMS
Business licenses and regulations. See specific subjects
Commercial solicitors ..... 6.64.050 et seq.
See: SOLICITATIONS
Curb loading zones
Permit requirements 12.48.020
Driver's or chauffeur's license 12.08.100 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Dry warehouses for storage of food 10.08.020
LICENSES AND PERMITS (Cont'd.)
Electrical permits ..... 16.20.160 et seq.
See: BUILDINGS AND CONSTRUCTION
Electricians, electrical contractors and equipment installers ..... 6.20.010 et seq.
See: ELECTRICITY
Encroachments ..... 13.16.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Entertainment transportation
Certificate of Public Convenience and Necessity
Findings—Issuance of certificate, renewal or additional permits 6.77.030
Excavations and obstructions. 13.20.030
Firearms and other weapons
Urban services district ..... 11.36.020 et seq.
See: FIREARMS AND OTHER WEAPONS
Fireworks 10.68.020
Horse-drawn carriages ..... 12.54.010 et seq.
See: HORSE-DRAWN CARRIAGES
Hucksters and peddlers ..... 6.32.010 et seq.
See: PEDDLERS AND SOLICITORS
Industrial waste discharges
Direct discharge into manhole
Permit required 15.60.160
Discharge permits ..... 15.60.200 et seq.
See: WATER, SEWERS AND OTHER PUBLIC SERVICES
Discharges to publicly owned treatment works
Holding tank and hauled waste
Permit required 15.60.140
Lobbyist registration and disclosure ..... 2.196.010 et seq.
See: LOBBYISTS

LICENSES AND PERMITS (Cont'd.)
- Low speed vehicles ..... 6.73.010 et seq.
  - See: TRAFFIC AND MOTOR VEHICLES
- Mass gatherings 10.44.030
- Mayor
  - Acceptance and execution of certain easements and permits 2.08.010
- Metropolitan transportation licensing commission ... 2.100.010 et seq.
  - See: TRANSPORTATION
- Other passenger vehicles for hire
  - Certification of public convenience and necessity
    - Request for additional permits 6.74.060
  - Drivers' permits ..... 6.74.100 et seq.
  - Equipment; vehicle permit required 6.74.200
- Parades ..... 12.56.030 et seq.
  - See: PARADES
- Parks, recreational facilities and cemeteries 13.24.070
- Pawnbrokers and secondhand dealers ..... 6.48.010 et seq.
  - See: PAWNBROKERS AND SECONDHAND DEALERS
- Pedicabs and pedal carriages . 6.75.010 et seq.
  - See: PEDICABS AND PEDAL CARRIAGES
- Permit parking programs ..... 12.42.010 et seq.
  - See: TRAFFIC AND MOTOR VEHICLES
- Plumbers, and plumbing and septic tank contractors .. 6.52.010 et seq.
  - See: PLUMBERS AND PLUMBING
- Police department
  - Special police commissions
    - Handgun permits 2.44.090
- Privilege taxes
  - Business tax
    - Marriage licenses 5.16.070
- Public swimming pools ..... 10.48.040 et seq.
  - See: SWIMMING POOLS

LICENSES AND PERMITS (Cont'd.)
- Rendering plants
  - Permit required 6.60.020
- Seated sightseeing vehicles... 6.78.090 et seq.
  - See: SEATED SIGHTSEEING VEHICLES
- Sexually oriented businesses . 6.54.010 et seq.
  - See: SEXUALLY ORIENTED BUSINESSES
- Shared urban mobility devices
  - Termination of SUMD permits 12.62.020
- Solid fuel sales or hauling.... 6.68.030 et seq.
  - See: FUEL AND GAS
- Sprinkler systems for fire protection 15.24.050
- Taxicabs
  - Drivers' permits ..... 6.72.100 et seq.
    - See: TAXICABS
- Trailer courts 10.40.020
- Urban forester
  - Permitting of arborists 2.104.070
  - Tree permits 2.104.060
- Urban services district regulations
  - Bankruptcy, close-out and similar sales ..... 6.92.010 et seq.
    - See: SALES
  - Firearms and other weapons ..... 11.36.020 et seq.
    - See: FIREARMS AND OTHER WEAPONS
  - Pawnbrokers, secondhand dealers and junk dealers ..... 6.100.010 et seq.
    - See: PAWNBROKERS AND SECONDHAND DEALERS
- Valet services ..... 12.41.020 et seq.
  - See: VALET SERVICES
- Waste management
  - Private collection permits .. 10.20.100
  - Sanitary landfill site—Extension of permit and use 10.20.060

LICENSES AND PERMITS (Cont'd.)
Wrecker and towing services . 6.80.010 et seq.
See: WRECKER AND TOWING SERVICES
LIGHTS AND LIGHTING
Excavations and obstructions
Interfering with warning lights prohibited 13.20.120
Night work
Warning lights required . 13.20.110
Light poles
Posting of political signs... 1.12.020
Mass gatherings
Lighting for facility areas.. 10.44.100
LITERATURE
Distributing literature near polling places 1.12.040
LITIGATION
Department of law
Division of tax litigation... 2.40.090
LITTERING
Definitions 10.24.010
Financial policies
Litter fee for individuals convicted of DUI 5.04.090
Handbills
Distribution in public places..... 10.24.030
Distribution on vehicles ... 10.24.040
Distribution restricted to daylight hours 10.24.180
Litter from
Aircraft..... 10.24.170
Litter from vehicle
Liability of drivers 10.24.150
Loads and tires..... 10.24.160
Litter in
Bodies of water..... 10.24.130
Parks 10.24.120
Litter on
Business premises
Responsibilities of owners 10.24.050
Occupied private property . 10.24.080
Private property
Responsibilities of owners 10.24.070
Public places
Responsibilities of citizens..... 10.24.060
Vacant lots..... 10.24.140
LITTERING (Cont'd.)
Litter permitted in designated places only..... 10.24.100
Notice to remove litter
Failure to comply..... 10.24.090
Penalty for violation 10.24.190
Posting notices prohibited when..... 10.24.020
Proper placement in receptacles required..... 10.24.110
Summons issuance for sanitation, litter control and animal control violations 1.24.020
LIVESTOCK. See: ANIMALS AND FOWL
LOADING AND UNLOADING
Bus and taxicab stands
Unlawful uses 12.48.080
Use conditions..... 12.48.070
Bus benches and shelters
Transit Authority rights and powers 12.48.090
Curb loading zones
Designation authority..... 12.48.010
Management program 12.48.025
Permit requirements 12.48.020
Freight loading zones
Location restrictions..... 12.48.040
Use restrictions..... 12.48.050
Public carrier stops and stands 12.48.060
Standing in passenger curb loading zones 12.48.030
LOBBYISTS
Lobbyist registration and disclosure
Actions, penalties, sanctions, enforcement and appeals of decisions of the board..... 2.196.130
Administration of provisions—powers and duties..... 2.196.030
Annual lobbying and expense report requirements—invitations and gifts... 2.196.060
Compensation 2.196.090
Complaints procedures 2.196.110
Cooling off period 2.196.100

LOBBYISTS (Cont'd.)
Definitions..... 2.196.020
Hearing procedures..... 2.196.120
Identification 2.196.080
Purpose and intent..... 2.196.010
Registration
Amending or withdrawing..... 2.196.050
Fees..... 2.196.040
Required when 2.196.040
Term 2.196.040
Unlawful activities designated 2.196.070
Procurement code
Source selection and contract formation
Contracts for government relations and lobbying services... 4.12.230

LOITERING
Metropolitan Nashville Airport Authority..... 2.60.220
Minors loitering during school hours 11.28.080
Railroads and grade crossings
Children loitering near railroad tracks
Arrest authorized when . 12.76.170
Parent or guardian responsibility..... 12.76.160
Loitering around railroad depot, tracks or yard prohibited 12.76.150

LOST AND FOUND
Metropolitan Nashville Airport Authority..... 2.60.130

LOUDSPEAKERS
Advertising signs and other advertising methods
Loudspeakers and noisy instruments prohibited
Exceptions 6.04.090

— M —

MAIL
Defined 12.04.160

MAINTENANCE
Department of finance
Division of public property administration
Organization and operation
Public property
Maintenance responsibility.. 2.24.200
Low speed vehicles
Equipment and operation
Inspection and maintenance of vehicles
Compliance required . 6.73.320
Official street and alley acceptance and maintenance record; adoption..... 13.08.010
Other passenger vehicles for hire
Equipment
Inspection and maintenance of vehicles—Compliance required 6.74.220
Inspection compliance decal required—Maintenance equipment..... 6.74.240
Pedicabs and pedal carriages
Equipment and operation
Inspection and maintenance of vehicles
Compliance required . 6.75.350
Public swimming pools
Pool maintenance..... 10.48.090
Rendering plants
Premises maintenance 6.60.040
Taxicabs
Inspection and maintenance of vehicles..... 6.72.240
Urban forester..... 2.104.040

MANHOLES
Excavations and obstructions
Utility manholes
Testing for flammable or toxic gases required 13.20.070
Two work people required at all times 13.20.080

MANHOLES (Cont'd.)
Industrial waste discharges
Direct discharge into manhole
Permit required..... 15.60.160
MANUFACTURER
Defined 12.04.165
MAPS
Fire zone map
Adopted by reference..... 16.04.180
Map of district boundaries ... 1.08.030
Official street map ..... 13.04.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Official zoning map ..... 17.40.030 et seq.
See: ZONING (Title 17)
Planning commission
Fees charged for computer generated map reproduction..... 2.136.020
Property identification maps for tax assessment..... 5.24.010 et seq.
See: REVENUE AND FINANCE
Stormwater management
Notification to property owners upon amendments to flood maps..... 15.64.230
Taxicabs
Map requirement 6.72.405
MATERIALS
Health department
Seizure, embargo, condemnation and disposal of prohibited materials..... 2.36.110
MAYOR
Acceptance and execution of certain easements and permits..... 2.08.010
Agreements with tax-exempt institutions for payment of metropolitan government services 2.08.020
Budget
Copies supplied
Contents 2.08.030
Conditional signature and submission of grant applications 2.08.045
MAYOR (Cont'd.)
Definitions for Article II 2.08.050
Department of general services
Mayor's authority to resolve controversies . 2.32.050
General curfew proclamation authority 2.08.070
Mayor's office of film and special events
Creation 2.62.010
Definitions..... 2.62.020
Denial, revocation and right to appeal 2.62.060
Duties and powers to administer certification mark program for use of certification marks, Music City and Music City, U.S.A. ..... 2.62.055.
Duties and powers to regulate
Banner program..... 2.62.050
Film activities..... 2.62.030
Special events..... 2.62.040
Enforcement..... 2.62.070
Mayor's powers and duties during proclaimed emergencies..... 2.08.080
No limitation of freedom of speech or peaceful demonstrations..... 2.08.090
Persons exempt from general curfew 2.08.100
Proclamation of emergencies by mayor..... 2.08.060
Violation of a mayoral executive order during a civil emergency is a class C misdemeanor.... 2.08.110
MEDICAL CARE BENEFITS
Personnel regulations ..... 3.24.010 et seq.
MEDICAL EXAMINER
Duties..... 2.38.020
Office created 2.38.010
Personnel 2.38.030
MEDICINES. See: DRUGS AND MEDICINES
MEETINGS
Bicycle and pedestrian advisory commission
Meetings 2.153.040

MEETINGS (Cont'd.)
Board of fire and building code appeals 2.80.060
Board of mechanical, plumbing, and electrical examiners and appeals
Meetings and hearings..... 2.76.060
Boards and commissions, meetings of ..... 2.68.010 et seq.
See: BOARDS, COMMITTEES, AND COMMISSIONS
Charter revision commission . 2.120.030
Community education commission 2.160.040
Metropolitan council
Committee meetings..... 2.04.020
Metropolitan safety advisory board..... 2.96.040
Nashville sustainability advisory committee
Meetings 2.155.030
Parks, recreational facilities and cemeteries 13.24.200
Public records commission... 2.140.040
METAL ITEMS
Urban services district regulations
Pawnbrokers, secondhand dealers and junk dealers..... 6.100.090
METRO BEAUTIFICATION AND ENVIRONMENT COMMISSION
Establishment 2.152.010
Membership
Appointment, compensation and term of office 2.152.020
Organization and staffing 2.152.030
Powers and duties 2.152.040
METROPOLITAN ACTION COMMISSION
Created..... 2.108.010
Meeting 2.108.040
Membership
Appointment and term of chairman and members..... 2.108.020
Powers and duties 2.108.050
Vice-chairman and other officers..... 2.108.030
METROPOLITAN ANIMAL CARE AND CONTROL COMMISSION
Composition, membership and term of office 2.114.020
Duties..... 2.114.030
Established..... 2.114.010
METROPOLITAN CLERK
Report and document filing policy
Persons and firms providing professional services to file final reports and recommendations with metropolitan clerk..... 2.188.010
METROPOLITAN COUNCIL
Advertisement and notice concerning rezone hearings or urban renewal projects..... 2.04.040
Approval of grants 2.04.050
Approval of transit improvement program... 2.04.060
Committee meetings 2.04.020
Council board of conduct 2.04.090
Declaration of policy, purposes, and intent..... 2.04.050
Disclosure..... 2.04.080
Financial policies
Debt report to metropolitan council 5.04.110
Office 2.04.030
Officers and employees; personnel regulations
Metropolitan employee benefit system generally
Annual report to the council..... 3.08.260
Police department
Reports to be submitted to the metropolitan council 2.44.115
President
Office established
Compensation..... 2.04.010
Procurement code; general provisions
Procurement contract reports to be submitted to the

council 4.04.080
Sanctions..... 2.04.100
Standards of conduct..... 2.04.070
Water, sewers and other public services
Water and sewer service system
Council approval of fees and charges required..... 15.12.055
METROPOLITAN HIGHWAY AND TRANSPORTATION SAFETY COORDINATING COUNCIL
Actions requiring appropriations and grants 2.168.050
Authority for operations
Contracts 2.168.030
Created
Powers and duties 2.168.010
Membership..... 2.168.020
Planning staff and assistance of other personnel..... 2.168.040
METROPOLITAN HOMELESSNESS COMMISSION
See: METROPOLITAN SOCIAL SERVICES COMMISSION
METROPOLITAN HOUSING FUND COMMISSION
Established..... 2.149.010
Membership and term of office..... 2.149.020
Powers and duties..... 2.149.040
Purpose of the commission... 2.149.030
METROPOLITAN HUMAN RELATIONS COMMISSION
Annual budget
Facilities..... 2.132.080
Composition
Qualifications, appointment, term and filling vacancies 2.132.030
Established..... 2.132.010
Mission and objectives..... 2.132.020
Officers and committees
Employment of staff..... 2.132.040
Powers and duties..... 2.132.070
Scope of responsibilities 2.132.060
METROPOLITAN JAIL AND WORKHOUSE
Consolidation of metropolitan and urban jails and workhouses 1.16.010
Custody and interrogation of prisoners 1.16.050
Escapes by prisoners 1.16.070
Fee for inmate's personal items 1.16.080
Prisoner incarceration procedures
Disposition of prisoner property 1.16.040
Sheriff's authority 1.16.020
METROPOLITAN NASHVILLE ARTS COMMISSION
Established..... 2.112.010
Membership and term of office..... 2.112.020
Powers and duties..... 2.112.040
Purpose of the commission... 2.112.030
Review, acceptance, and maintenance of donated artwork..... 2.112.050
METROPOLITAN NASHVILLE GENERAL HOSPITAL
Admittance conditions
Discrimination prohibited . 2.164.010
Contracting authority for the board of hospitals 2.164.050
Metropolitan hospital authority
Agreements with 2.164.020
METROPOLITAN SOCIAL SERVICES COMMISSION
Authority to use the name metropolitan social services 2.144.010
Cold weather response annual plan..... 2.144.050
Nashville Davidson County Continuum of Care Homelessness Planning Council
Association with government..... 2.144.040
Duties and responsibilities. 2.144.030
Established; membership .. 2.144.020

METROPOLITAN TREASURER
General provisions re 2.24.050
METROPOLITAN TRUSTEE
Bond for metropolitan trustee 2.12.010
Metropolitan trustee to collect delinquent property taxes 2.12.030
Storage of certain obsolete tax records
Duties and reports 2.12.020
MIDTOWN CENTRAL BUSINESS IMPROVEMENT DISTRICT
Annual budget 2.179.070
Annual reporting 2.179.100
Boundary 2.179.020
Created..... 2.179.020
Definitions 2.179.010
Estimated costs and rate of levy; special assessment procedure 2.179.080
Feedback procedures 2.179.110
Liberal construction 2.179.040
Management corporation
Dissolution 2.179.090
Generally 2.179.050
Powers..... 2.179.060
Purposes and mission 2.179.030
MILK AND MILK PRODUCTS
Disease control
Sale of restricted when 10.16.250
MINES AND MINING
Quarrying and mining operations
Abatement notice
Compliance or appeal required 10.52.030
Definitions..... 10.52.010
Failure to comply
Liability of owner 10.52.040
Nuisance declared when ... 10.52.020
Regulations and procedures for hearings 10.52.050
MINORS
Alcoholic beverages use restrictions 7.24.020
Bicycles..... 12.60.010 et seq.
See: BICYCLES
MINORS (Cont'd.)
Graffiti
Parental civil liability 11.26.050
Possession of graffiti implements by minors prohibited 11.26.030
Sale of graffiti implements to minors prohibited .. 11.26.045
Health department
Inspection
Premises providing services to children. 2.36.060
Metropolitan courts
Judge of juvenile court
Authority to detain certain juveniles
Education requirements for detainees 2.56.010
Offenses by or against minors 11.28.010 et seq.
See: PUBLIC PEACE, MORALS AND WELFARE
Railroads and trains
Children loitering near railroad tracks ..... 12.76.160 et seq.
See: RAILROADS AND TRAINS
Scooters, roller skates and in-line skates ..... 12.58.010 et seq.
See: SCOOTERS, ROLLER SKATES AND IN-LINE SKATES
Urban services district
Firearms and other weapons
Sale to minors prohibited 11.36.080
Use of mobile telephones while operating a school bus or other vehicle transporting children 12.68.210
MOTELS. See: HOTELS/MOTELS
MOTOR HOME
Defined 12.04.185
MOTOR VEHICLES. See: TRAFFIC AND MOTOR VEHICLES
MOTORCYCLE
Applicability of traffic regulations 12.64.010

MOTORCYCLE (Cont'd.)
Clinging to other vehicles 12.64.060
Defined 12.04.175
Equipment required for motorcycle riders..... 12.64.040
Footrest and handlebar requirements 12.64.030
Manner of riding
Restrictions..... 12.64.020
Operating procedures on laned roadways..... 12.64.050
MOTOR-DRIVEN CYCLE
Defined 12.04.180
MOVIES
Minors
Admittance to certain movies not permitted . 11.28.130
MOVING COMPANIES
Reporting requirements 6.44.010
MUNICIPAL AUDITORIUM
Hucksters and peddlers..... 6.32.020 et seq.
See: PEDDLERS AND SOLICITORS
MUNICIPAL STADIUM
Taxes
Privilege taxes on sale of tickets to events at municipal stadium .... 5.14.010 et seq.
See: REVENUE AND FINANCE

— N —

NAILS
Miscellaneous driving rules
Putting glass, nails or other injurious materials on highway
Clearing accident wreckage..... 12.68.150
NASHVILLE ARENA
Hucksters and peddlers..... 6.32.04
NASHVILLE CONVENTION CENTER
Hucksters and peddlers..... 6.32.010
NASHVILLE ENTERTAINMENT COMMISSION
Composition, membership, and term of office 2.147.030
Definitions 2.147.020
Duties..... 2.147.050
Established..... 2.147.010
Mission of the commission... 2.147.040
NASHVILLE ENTERTAINMENT COMMISSION (Cont'd.)
Nashville office of entertainment 2.147.060
Staffing 2.147.065
NASHVILLE SUSTAINABILITY ADVISORY COMMITTEE
Composition, membership, and term of appointment 2.155.020
Establishment 2.155.010
Meetings 2.155.030
Powers and duties 2.155.040
NATURAL DISASTERS
Business transactions after a natural disaster
Exception..... 6.82.020
Prices of goods and services to remain the same after state of emergency 6.82.010
Violation
Penalty..... 6.82.030
NEIGHBORHOOD LANDMARK DISTRICT
Zoning regulations ..... 17.36.400 et seq.
See: ZONING (Title 17)
NEIGHBORHOODS
Neighborhood revitalization
Vacant property review commission
Definitions 10.86.020
Duties..... 10.86.040
Eminent domain
Required findings..... 10.86.050
Findings and purpose ... 10.86.010
Municipal officers and employees
Limited financial interests
Nondisclosure is misconduct.... 10.86.060
Vacant property review commission 10.86.030
NEWSPAPERS
Nonsubscription newspapers
Discontinuance of delivery required when 11.32.010

NOISE AND AMPLIFIED SOUND
- Advertising signs and other advertising methods
  - Loudspeakers and noisy instruments prohibited
    - Exceptions 6.04.090
- Construction noise
  - Enforcement 9.30.040
  - Exemptions 9.30.020
  - Noise control 16.44.010
  - Outdoor construction hours 9.30.010
  - Variances 9.30.030
- Definitions 9.10.010
- Excessive noise
  - Commercial noise 9.20.040
  - Enforcement 9.20.060
  - Motor vehicle noise 9.20.020
  - Outdoor entertainment and mass gatherings 9.20.030
  - Pedal carriage 9.20.050
  - Provisions re 11.12.070
  - Sound amplification equipment 9.20.010
- Exemptions 9.10.030
- Mass gatherings
  - Noise level 10.44.110
- Noise sound pressure levels; measurement 9.10.020

NONCONFORMITIES
- Nonconforming driveways ... 13.12.180
- Nonconforming uses, structures, lots and signs 17.40.640 et seq.
  - See: ZONING (Title 17)

NOTICES AND NOTIFICATION
- Airborne pesticides
  - Government use of
    - Public notification, protection 10.32.180
- Boards, committees, and commissions
  - Meetings of boards and commissions
    - Notice of appeal process 2.68.030
- Booting services
  - Equipment and operation
    - Notices at time booting device is installed .. 6.81.130
- Burglar and fire alarm systems
  - Registration required
    - Permit fees 10.60.020

NOTICES AND NOTIFICATION (Cont'd.)
- Control of excessive vegetation
  - Notice of violation 10.28.050
- Effective communication with individuals with disabilities in metropolitan government programs and services 2.214.030
- Electricians, electrical contractors and equipment installers ..... 6.20.010 et seq.
  - See: ELECTRICITY
- Health department
  - Tearing down or mutilating official notices 2.36.170
- Metropolitan council
  - Advertisement and notice concerning rezone hearings or urban renewal projects 2.04.040
- Officers and employees
  - Personnel regulations
    - In-line-of-duty medical treatment for metropolitan government employees who are not regularly employed
      - Notice of injury 3.05.030
- Quarrying and mining operations
  - Abatement notice 10.52.030
- Registration of convicts
  - Change of address
    - Notification requirements 1.20.020
- Unsafe buildings
  - Notice to vacate 16.52.070

NUISANCES
- Air pollution control
  - Nuisance declared 10.56.150
- Health department
  - Nuisances designated
    - Abatement authority 2.36.100
- Metropolitan Nashville Airport Authority 2.60.190
- Quarrying and mining operations
  - Nuisance declared when ... 10.52.020

NUISANCES (Cont'd.)
Removal of dead animals..... 10.70.010 et seq.
See: ANIMALS AND FOWL
Scrap tires
Civil remedies; abatement of nuisance 10.30.070
Small business economic development incentive grants
Blighted property grants... 2.212.030
Urban services district regulations
Street and sidewalk regulations
Public nuisances prohibited..... 13.32.110
Waste management; nuisance declared when..... 10.20.120

— O —

OATHS
Licensed weigher 6.76.230
OBSCENITIES AND INDECENCIES
Indecent exposure..... 11.16.020
Lewd or disruptive behavior on or around school grounds 11.12.050
Minors, offenses by or against
Assault
Indecent exposure..... 11.28.030
OBSTRUCTING AND OBSTRUCTIONS
Driveways
Sight obstruction 13.12.190
General regulations ..... 13.20.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Health department
Interfering with or obstructing department personnel. 2.36.180
Intersections, driveways or rights-of-way, obstructing visibility at.. 13.08.050
OBSTRUCTING AND OBSTRUCTIONS (Cont'd.)
Office of emergency management
Interfering with emergency management officials unlawful 2.10.060
Parades, interfering with or obstructing 12.56.120
Parking
Blocking driveways or garages 12.40.130
Parking not to obstruct traffic..... 12.40.080
Parks, recreational facilities and cemeteries
Vehicles and traffic
Obstructing traffic prohibited..... 13.24.330
Placing obstructions on public property for private benefit..... 11.24.080
Through streets and stop intersections
Obstructing intersections .. 12.24.060
Urban services district regulations
Street and sidewalk regulations
Removal of obstructions
Offender's responsibility 13.32.100
ODORS
Emission of gases, vapors or objectionable odors
Air pollution control..... 10.56.170
OFFICE OF FAMILY SAFETY
Creation..... 2.61.010
Mission and purpose 2.61.020
Personnel 2.61.040
Powers and duties..... 2.61.030
OFFICERS AND EMPLOYEES
Assistant metropolitan attorneys 2.40.020
Beer permit board
Metropolitan beer permit inspectors..... 7.04.060
Board of fire and building code appeals
Organization and officers .. 2.80.030

OFFICERS AND EMPLOYEES (Cont'd.)
- Board of mechanical, plumbing, and electrical examiners and appeals
  - Organization and officers .. 2.76.030
- Board of property standards and appeals
  - Organization and officers .. 2.88.030
- Boards and commissions
  - Organization and operation of boards and commissions
    - Election of officers
      - Certification of organization 2.64.040
    - Rules and regulations for functions and personnel..... 2.64.030
- Charter revision commission
  - Officers..... 2.120.050
  - Personnel..... 2.120.100
- Community education commission 2.160.030
- Court stenographer and brief printer..... 2.40.030
- Department of codes administration
  - Director
    - Additional powers and duties 2.20.040
    - Determination of duties of sections and units..... 2.20.050
    - Service as secretary of certain boards 2.20.030
  - Metropolitan administrative hearing officer 2.20.130
- Department of finance..... 2.24.010 et seq.
  - See: FINANCE
- Department of general services 2.32.030
  - Director 2.32.020
- Department of law ..... 2.40.030 et seq.
  - See: LAW, DEPARTMENT OF
- Department of public works
  - Director of engineering 2.48.020
  - Special assistant to the director 2.48.030

OFFICERS AND EMPLOYEES (Cont'd.)
- Department of water and sewer services..... 2.52.010 et seq.
  - See: WATER, SEWERS AND OTHER PUBLIC SERVICES
- Domestic partner benefits .... 3.14.010 et seq.
  - See: DOMESTIC PARTNER BENEFITS
- Electricians, electrical contractors and equipment installers..... 6.20.010 et seq.
  - See: ELECTRICITY
- Emergency management, office of..... 2.10.030
- Fair employment and housing practices ..... 11.20.010 et seq.
  - See: PUBLIC PEACE, MORALS AND WELFARE
- Fire department
  - Personnel rules and regulations..... 2.28.080 et seq.
    - See: FIRE DEPARTMENT
- Hiring of certain officers prohibited 2.44.045
- Historical commission
  - Officers and bylaws
    - Authority to purchase property and other powers 2.128.040
- Homeless services, office of.. 2.63.010 et seq.
  - See: HOMELESS SERVICES, OFFICE OF
- Mayor..... 2.08.010 et seq.
  - See: MAYOR
- Mayor's office of film and special events ..... 2.62.010 et seq.
  - See: MAYOR
- Medical examiner's office 2.38.030
- Metropolitan action commission
  - Vice-chairman and other officers 2.108.030
- Metropolitan attorney 2.40.010
- Metropolitan courts
  - Division of probation ..... 2.56.100 et seq.
    - See: COURTS

OFFICERS AND EMPLOYEES (Cont'd.)
- DUI school staffing and records 2.56.560
- Sheriffs office DUI school, creation of 2.56.550
- Traffic safety school staffing and records ... 2.56.520

Metropolitan employee's consolidated charities program
- Administration 2.218.020
- Director of personnel 2.218.030
- Eligibility 2.218.040
- Established 2.218.010
- Purchasing agent 2.218.060
- Written request and authorization 2.218.050

Metropolitan human relations commission
- Officers and committees
  - Employment of staff 2.132.040

Metropolitan safety advisory board 2.96.030

Metropolitan transportation licensing commission ... 2.100.020 et seq.
- See: TRANSPORTATION

Office of family safety 2.61.040

Personnel regulations
- Contributions and financing
  - Contributions
    - Generally 3.16.010
  - Employee contributions
    - Medical care and life insurance 3.16.020
    - Pensions 3.16.030
  - Metropolitan government contributions
    - Medical care and life insurance 3.16.040
    - Pensions 3.16.050
- Disability pensions
  - Division A
    - Board authority
      - Disability report required
        - Resuming work
          - Termination of pension .. 3.28.060

OFFICERS AND EMPLOYEES (Cont'd.)
- Disability pensions
  - Division A
    - Determination and payment of pension 3.28.050
    - Disability defined 3.28.010
    - Eligibility for pension
      - Disabled in line of duty 3.28.040
      - Disabled not in line of duty 3.28.030
      - Policy generally 3.28.020
    - Questionnaire requirements for recipients 3.28.100
    - Survivor benefits
      - Conditions for payment 3.28.070
      - When member died in line of duty . 3.28.080
  - Division B
    - Board authority
      - Disability report required
        - Resuming work
          - Termination of pension .. 3.29.060
    - Determination and payment of pension 3.29.050
    - Disability defined 3.29.010
    - Eligibility for pension
      - Disabled in line of duty 3.29.040
      - Disabled not in line of duty 3.29.030
      - Policy generally 3.29.020
    - Questionnaire requirements for recipients 3.29.090
    - Survivor benefits
      - Conditions for payment 3.29.070
      - When member died in line of duty . 3.29.080

Domestic partner benefits .. 3.14.010 et seq.

Employee assistance program
- Appointment
  - Status as civil service employees 3.64.020
- Division of metropolitan health department .. 3.64.010

OFFICERS AND EMPLOYEES (Cont'd.)
- Scope
  - Availability to whom . 3.64.030
- Employee award programs
  - Award board
    - Established
      - Powers and duties .. 3.60.070
  - Award program
    - Established 3.60.060
  - Maximum cash awards
    - Appropriation item charged 3.60.040
  - Positions excluded from receiving awards ... 3.60.090
  - Positions excluded from receiving suggestion awards.. 3.60.050
  - Suggestion award board
    - Established 3.60.020
    - Powers and duties 3.60.030
  - Suggestion award program
    - Established 3.60.010
  - Type of award 3.60.080
- Employee classification and compensation
  - Elected official compensation assessments required 3.52.020
  - Pay plan worksheets
    - Submitted when Information requirements .. 3.52.010
- Employee residence requirements
  - Exceptions 3.04.010
- Hiring and selection of department heads and executive directors.... 3.06.010
- In-line-of-duty medical treatment for metropolitan government employees who are not regularly employed
  - Board of education employees..... 3.05.070
  - Chapter, limitation of ... 3.05.060

OFFICERS AND EMPLOYEES (Cont'd.)
- Expense for treatment of accidental injury in the course of employment..... 3.05.010
- In-line-of-duty medical treatment, administration of... 3.05.020
- Notice of injury 3.05.030
- Prior in-line-of-duty injuries, treatment of 3.05.040
- Subrogation 3.05.050

Labor policy
- Agreements requiring funding to be submitted to council 3.56.050
- Employees relations board
  - Established
    - Membership
      - Duties 3.56.080
  - Mediation issues
    - Submittal and procedure 3.56.090
- Exclusive representatives
  - Determining status.... 3.56.020
  - Powers and duties
    - Term of recognition 3.56.030
- Government directed to meet with employees
  - Response to bargaining petition 3.56.040
- Payroll deductions for dues..... 3.56.060
- Right of employees to organize
  - Collective bargaining . 3.56.010
- Right to strike not granted by chapter . 3.56.070

Life insurance and medical care for nonmembers
- Continuous coverage required
  - Nonmember restrictions..... 3.44.060

OFFICERS AND EMPLOYEES (Cont'd.)
- Employment benefit rights for CETA employees 3.44.070
- Enrollment of nonmembers
  - When required 3.44.030
- Extending benefits to nonmembers 3.44.020
- Nonmember defined 3.44.010
- Payment of premiums ... 3.44.040
- Refund of premiums 3.44.050

Life insurance benefits
- Determination of benefits 3.20.020
- Eligibility for benefits ... 3.20.010
- In-line-of-duty death benefit 3.20.040
- Life contract requirements
  - Benefits and features . 3.20.030

Medical care benefits
- Benefit requirements 3.24.020
- Eligibility for benefits ... 3.24.010

Membership
- Application for membership
  - Excludable impairments 3.12.010
- Change in eligibility status
  - Effect on participation 3.12.060
- Continuation of membership 3.12.040
- Eligibility and participation
  - Conditions 3.12.020
  - Transfer from former plan 3.12.030
- Metropolitan employee benefit system
  - Division A and Division B 3.12.031
- Termination of membership 3.12.050

Metropolitan employee benefit system generally
- Amendments to system provisions
  - Effect on benefits 3.08.200

OFFICERS AND EMPLOYEES (Cont'd.)
- Annual report to the council 3.08.260

Attempt to defraud system prohibited
- Legal proceedings
  - Penalty 3.08.240

Beneficiary payments
- Minors and legally incompetent persons 3.08.100

Benefit board
- Administration authority
  - Powers and duties .. 3.08.040
- Executive secretary ... 3.08.050

Board members
- Prohibited personal interests 3.08.060

Change or error in records
- Effect on payment received or contribution paid 3.08.230

Division A definitions ... 3.08.011

Division B definitions ... 3.08.012

Firefighter health
- Presumptions concerning impairment in course of employment 3.08.250

General definitions 3.08.010

Insurer selection
- Procedure
  - Plan approval by council required 3.08.110

Intent and purpose of system 3.08.030

Investment committee
- Powers and duties 3.08.120

Limitations of system provisions
- Conflict with other systems 3.08.190

Plan benefit payments
- Conditions for approval 3.08.160
- Cost-of-living increase
  - Division A 3.08.170

OFFICERS AND EMPLOYEES (Cont'd.)
- Division B 3.08.171
- Plan benefits exempt from taxation, execution or assignment, except as required by state or federal law 3.08.180
- Prior service certificates. 3.08.080
- Social security benefits.. 3.08.150
- System established
  - Application of former plan..... 3.08.020
- Termination of plans
  - By default 3.08.210
  - Procedure..... 3.08.220
- Trust fund accounts
  - Established
    - Prior contributions . 3.08.140
- Trust funds
  - Established
    - Requirements 3.08.130

Minimum benefits, options, and death before retirement
- Death before retirement benefits commence
  - Dependent child benefit..... 3.40.045
  - Division A..... 3.40.040
  - Division B..... 3.40.041
- Deferred Retirement Option Plan for members of Division A and B ("DROP") 3.40.035
- Minimum service pension benefit..... 3.40.050
- Optional benefits
  - Conditions for payment 3.40.020
  - Defined..... 3.40.030
- Pension contributions
  - Refund
    - Revocation of withdrawal
      - Repayment after reemployment 3.40.010

Pensions for members with credited employee service
- Division A
  - Early retirement pension 3.32.030
  - Eligibility for pension 3.32.010
  - Normal retirement pension 3.32.020
  - Vested pension after required years of credited employee service 3.32.040
- Division B
  - Early retirement pension 3.33.030
  - Eligibility for pension 3.33.010
  - Normal retirement pension 3.33.020
  - Unused sick leave at service retirement 3.33.050
  - Vested pension after required years of credited employee service 3.33.040

Pensions for members with fire and police credited service
- Division A
  - Early retirement pension 3.36.030
  - Eligibility for pension 3.36.010
  - Normal retirement pension 3.36.020
  - Vested pension after required years of credited employee service 3.36.040
- Division B
  - Early retirement pension 3.37.030
  - Eligibility for pension 3.37.010
  - Normal retirement pension 3.37.020
  - Unused sick leave at service retirement 3.37.050
  - Vested pension after required years of credited employee service 3.37.040

Plan qualification
- Actuarial equivalence ... 3.30.040
- Benefit limitations based on Code Section 415..... 3.30.020

OFFICERS AND EMPLOYEES (Cont'd.)
- Definitions 3.30.110
- Family Medical Leave Act requirements ... 3.30.080
- Introduction 3.30.010
- Limitation on earnings .. 3.30.030
- Minimum distributions .. 3.30.050
- Plan forfeitures 3.30.100
- Prohibition against diversion of trust funds 3.30.120
- Qualified military service 3.30.070
- Right to direct rollover .. 3.30.060
- Vesting upon plan termination 3.30.090

Social security
- Execution of agreements
  - Board of education employees Authority 3.48.030
  - Employees and officials Authority 3.48.020
- Payroll withholdings
  - Generally 3.48.040
  - Payment to state and federal agencies . 3.48.060
  - Transfer from prior systems 3.48.050
- Persons exempted from benefits 3.48.080
- Policy and purpose Statutory authority 3.48.010
- Records and reports 3.48.070

Procurement code
- Purchasing agent ..... 4.16.030 et seq.
- See: PROCUREMENT CODE

School crossing guard division ..... 2.44.120 et seq.
- See: POLICE DEPARTMENT

Sexual harassment awareness and prevention training .. 2.230.010 et seq.
- SEXUAL HARASSMENT AWARENESS AND PREVENTION TRAINING

OFFICERS AND EMPLOYEES (Cont'd.)

Standards of conduct, disclosure of interests, and enforcement
- Board of ethical conduct ... 2.222.040
- Definitions for standards of conduct 2.222.010
- Disclosure 2.222.030
- Enforcement 2.222.060
- Sanctions 2.222.050
- Standards of conduct 2.222.020

Waste management; director authority 10.20.030

OPEN BURNING
- Air pollution control 10.56.250

OPEN CONTAINERS
- Alcoholic beverages in 7.24.040

OPEN SPACE COMMISSION.
- See: GREENWAY AND OPEN SPACE COMMISSION

ORDINANCES. See: LAWS, ORDINANCES AND RESOLUTIONS

OWNER
- Defined 12.04.215

— P —

PARADES
- Assistance of mayor's office of film and special events; fees 12.56.170
- Definitions 12.56.020
- Driving through parades 12.56.130
- Exceptions from chapter applicability 12.56.040
- Financial responsibility restrictions
  - Insurance required when Recreational parades 12.56.070
- Funeral processions
  - Miscellaneous driving rules ..... 12.68.010 et seq.
  - See: TRAFFIC AND MOTOR VEHICLES
- Injunctive relief 12.56.150
- Interfering with or obstructing parades 12.56.120
- Method for computing of time 12.56.090
- Parking on parade route 12.56.140

PARADES (Cont'd.)
Permit
Application filing procedures
Police chief authority ... 12.56.050
Issuance conditions 12.56.060
Notice of rejection 12.56.080
Required when
Application 12.56.030
Revocation conditions 12.56.110
Permittee's duty to comply with directions and conditions 12.56.100
Title for citation 12.56.010
Unlawful activities designated
Penalty 12.56.160
PARAPHERNALIA
Controlled substances
Possession of paraphernalia prohibited
Exceptions 11.16.050
PARKING
Defined 12.04.220
Metropolitan Nashville Airport Authority ..... 2.60.280 et seq.
See: AVIATION AND AIRCRAFT
Parking meter zones ..... 12.44.010 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Parks, recreational facilities and cemeteries 13.24.310
Permit parking programs ..... 12.42.010 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Trailer courts
Additions to trailers
Parking restrictions 10.40.060
Urban services district regulations
Parking lots, decks and garages ..... 13.40.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Valet services ..... 12.41.010 et seq.
See: VALET SERVICES
PARKING (Cont'd.)
Wrecker and towing services
License for operation
Signage; unpaid parking violations 6.80.195
Zoning regulations ..... 17.20.010 et seq.
See: ZONING (Title 17)
PARKS AND RECREATION
Community garden grant program
Parks and recreation department—Powers and responsibilities ... 2.224.050
Littering ..... 10.24.010 et seq.
See: LITTERING
Street, sidewalks and public places
General regulations ..... 13.24.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
PAROLE
Metropolitan courts
Parole and probation office 2.56.140 et seq.
See: COURTS
Parole of traffic violators
Failure to observe conditions deemed misdemeanor 2.56.020
PAWNBROKERS AND SECONDHAND DEALERS
Daily reports 6.48.030
Register 6.48.010
Requirements before resale of article 6.48.020
Urban services district regulations
Pawnbrokers, secondhand dealers and junk dealers
Automobile dealers
Register, daily reports
Inspection 6.100.050
Book sales
Reports
Inspection 6.100.060
Bottle dealers
Register
Inspection
Purchases 6.100.070

PAWNBROKERS AND SECONDHAND DEALERS (Cont'd.)
- Daily reports
  - Inspection
    - Violation 6.100.030
- Jewelry
  - Register, daily reports
    - Inspection 6.100.080
- Metal items
  - Daily reports
    - Inspection 6.100.090
- Plumbing material
  - Authorized sellers
    - Register
      - Inspection 6.100.100
  - Daily reports
    - Inspection 6.100.110
- Register requirements ... 6.100.020
- Signs
  - License required 6.100.010
- Time restrictions before resale 6.100.040

PEDDLERS AND SOLICITORS
- Commercial solicitors ..... 6.64.010 et seq.
  - See: SOLICITATIONS
- Hucksters and peddlers
  - Area regulations
    - Ascend Amphitheater ... 6.32.080
    - First Tennessee Park 6.32.090
    - Municipal auditorium ... 6.32.020
    - Nashville Arena 6.32.04
    - Nashville Convention Center 6.32.010
    - Ryman Auditorium 6.32.050
    - Tennessee Performing Arts Center 6.32.060
    - War Memorial Auditorium 6.32.070
  - Municipal auditorium
    - Disclosure of admission charge 6.32.030
- Parks, recreational facilities and cemeteries 13.24.210

PEDESTRIANS
- Blind pedestrians 12.52.070
- Crossing in front of vehicles stopped to discharge passengers 12.52.110
- Crossing where crosswalks not marked 12.52.040
- Defined 12.04.250

PEDESTRIANS (Cont'd.)
- Driver responsibilities 12.52.120
- Motorized wheelchairs, use requirements 12.52.150
- Obedience to railroad signals. 12.52.100
- Pedestrian right-of-way in crosswalks
  - Driver responsibilities 12.52.020
- Pedestrians on highways and roadways 12.52.080
- Pedestrians to obey traffic regulations and traffic-control devices ... 12.52.010
- Pedestrians to yield to authorized emergency vehicles 12.52.090
- Pedestrians under the influence of alcohol or drugs 12.52.140
- Pedestrians using white canes or sticks 12.52.060
- Right-of-way on sidewalks ... 12.52.050
- Soliciting rides or business prohibited 12.52.130
- Traffic-control devices 12.12.140
- Use of right half of crosswalk 12.52.030

PEDICABS AND PEDAL CARRIAGES
- Certificate of public convenience and necessity
  - Annual renewal 6.75.060
  - Application; information and fees required 6.75.040
  - Findings; issuance of certificate or additional permits 6.75.030
  - Insurance required 6.75.070
  - Issuance and denial; fees .. 6.75.050
  - Police officers, enforcement by 6.75.100
  - Request for additional permits 6.75.080
  - Required and term 6.75.020
  - Suspension and revocation. 6.75.090
- Civil penalty schedules
  - Violations—Penalties 6.75.580
- Definitions 6.75.010
- Driver permit
  - Alcohol in a pedicab or pedal carriage 6.75.240
  - Application
    - Approval or disapproval. 6.75.140

PEDICABS AND PEDAL CARRIAGES (Cont'd.)
Information and fees required 6.75.120
Compliance with provisions 6.75.280
Driver
Appearance 6.75.230
Conduct of 6.75.210
Unpermitted..... 6.75.160
Expiration; issuance and replacement fee..... 6.75.180
Fingerprint-based criminal background investigation..... 6.75.130
Hospitality training program; participation required 6.75.185
Issuance; permit contents and display 6.75.150
New application after denial..... 6.75.170
Passenger as controller of cab 6.75.270
Pedicab driver photo identification and uniform..... 6.75.260
Permit required; violations and term 6.75.110
Return of passengers' property 6.75.250
Revocation of a valid driver's license..... 6.75.200
Suspension, revocation, and appeal 6.75.190
Equipment and operation
Accidents..... 6.75.430
Application of code provisions regarding bicycles..... 6.75.530
Compliance with other laws 6.75.540
Contract rates..... 6.75.370
Duty to render service; business requirements 6.75.400
Inspection and maintenance of vehicles
Compliance required 6.75.350
Inspectors; reporting or citing violations 6.75.550
Limitation of service due to weather conditions . 6.75.570

PEDICABS AND PEDAL CARRIAGES (Cont'd.)
Operating area..... 6.75.410
Passengers
Disposition of disorderly 6.75.480
Receiving and discharging by drivers 6.75.450
Refusal to carry orderly . 6.75.470
Refusal to pay legal fare. 6.75.460
Pedal carriage/pedicab and equipment 6.75.390
Pedicab passenger's bill of rights 6.75.560
Rate schedule and card for pedicabs 6.75.360
Records and reports..... 6.75.420
Soliciting
Business 6.75.500
Passengers 6.75.490
Prohibited manner of.... 6.75.510
Taxicab stands; prohibited vehicles..... 6.75.520
Vehicle
Advertising on 6.75.380
Ownership and control of 6.75.300
Permit required..... 6.75.290
Requirements 6.75.320
Vehicle to display
Company name, color scheme insignia and numbering
Restrictions..... 6.75.330
Identification..... 6.75.310
Noise and amplified sound
Excessive noise
Pedal carriage..... 9.20.050
PEEPING OR SPYING
Offenses against public decency 11.16.010
PENALTIES AND VIOLATIONS
General penalty and citations for violations..... 1.24.020 et seq.
See: CODE OF ORDINANCES
PENSIONS
Metropolitan employee benefit system generally. 3.08.010 et seq.
See: OFFICERS AND EMPLOYEES

PERMITS. See: LICENSES AND PERMITS
PERSONNEL. See: OFFICERS AND EMPLOYEES
PESTS AND PEST CONTROL
Rodents, insects and other pests
Accumulation of building materials..... 10.32.140
Accumulation of garbage .. 10.32.130
Airborne pesticides
Government use of
Public notification, protection..... 10.32.180
Buildings in which foodstuffs are stored .. 10.32.030
Definitions..... 10.32.010
Eliminating rat harborage areas
Floor construction requirements 10.32.080
Inspection authority
Abatement notice 10.32.050
Inspection prior to issuance of license.... 10.32.040
Maintenance of ratproofed buildings..... 10.32.090
Quarantine of premises 10.32.150
Rat eradication measures
Compliance required 10.32.070
Ratproofed business buildings required 10.32.020
Ratproofing measures
Compliance required 10.32.060
Removal of ratproofing prohibited 10.32.100
Removing stagnant water .. 10.32.160
Responsibilities of owners
Failure to comply 10.32.170
Storage and disposal of garbage..... 10.32.120
Storage of animal feed..... 10.32.110
Trailer courts
Insect and rodent control measures 10.40.140
PHOTOGRAPHY
Metropolitan Nashville Airport Authority..... 2.60.230
PHYSICIANS. See: HOSPITALS AND PHYSICIANS
PICKETING
Metropolitan Nashville Airport Authority..... 2.60.240
PICNICS
Parks, recreational facilities and cemeteries 13.24.220
PLANNED UNIT DEVELOPMENT (PUD) DISTRICT
Zoning regulations ..... 17.36.030 et seq.
See: ZONING (Title 17)
PLANNING COMMISSION
Affordable housing report.... 2.136.030
Commission authorized to adopt certain subdivision plat processing fees..... 2.136.010
Fees charged for computer generated map reproduction 2.136.020
PLANTS AND PLANTING
Trees. See: TREES AND SHRUBBERY
Urban forester..... 2.104.030
PLANTS (Commercial and Industrial). See: FACTORIES AND PLANTS
PLATS
Planning commission
Commission authorized to adopt certain subdivision plat processing fees 2.136.010
PLUMBERS AND PLUMBING
Board of mechanical, plumbing, and electrical examiners and appeals .. 2.76.010 et seq.
See: BOARD OF MECHANICAL, PLUMBING, AND ELECTRICAL EXAMINERS AND APPEALS
Department of codes administration
Plumbing inspection staff.. 2.20.120
Plumbers, and plumbing and septic tank contractors
Plumbers
Application for examination and licensing 6.52.040

PLUMBERS AND PLUMBING (Cont'd.)
Classifications
Defined 6.52.020
Established 6.52.010
Examination
Conducting authority
Type 6.52.060
Failure to appear 6.52.070
Notice 6.52.050
Examination, licensing and registration required 6.52.030
Fees
Examination, licensing and renewal 6.52.100
License
Expiration and renewal
Penalty 6.52.110
Issuance requirements 6.52.090
Revocation and suspension
Penalties
Inspections 6.52.120
Reexamination 6.52.080
Plumbing contractors
Appeal from work stoppage order 6.52.180
Employment requirements 6.52.160
Metropolitan plumbing contractor defined .. 6.52.130
Registration and bonding conditions . 6.52.150
Registration and bonding required ... 6.52.140
Vehicle requirements 6.52.165
Work stoppage order 6.52.170
Septic tank and overflow contractors
Bond required 6.52.220
Examination required
Fee 6.52.230
Registration
Fees and expiration ... 6.52.210
Registration required 6.52.200
Septic tank and overflow contractor defined .. 6.52.190
Plumbing Code ..... 16.12.120 et seq.
See: BUILDINGS AND CONSTRUCTION

PLUMBERS AND PLUMBING (Cont'd.)
Plumbing material
Urban services district regulations
Pawnbrokers, secondhand dealers and junk dealers 6.100.100
Trailer courts 10.40.090
POLES AND POSTS
Buildings and construction
Building permits
Approved permits and construction hours signs
Posted at premises 16.28.230
Posting of political signs
On telephone or light poles 1.12.020
Urban services district regulations
POLICE DEPARTMENT
Animals
Interfering with police officers or health department officials unlawful 8.04.170
Combat auto theft (CAT) program
Acceptance of funds 2.44.190
Authorization
Administration 2.44.180
Use of funds 2.44.200
Divisions and bureaus of the department
Police chief authority 2.44.030
Establishment and composition 2.44.010
Extra compensation for certain personnel 2.44.060
Extra-duty police officers
Contracting to assign extra-duty police officers 2.44.210
Fire department
Police powers of fire marshal 2.28.160
Hiring of certain officers prohibited 2.44.045
In-service training program .. 2.44.050
Low speed vehicles
Certificate of public convenience and necessity
Enforcement by police officers 6.73.100

POLICE DEPARTMENT (Cont'd.)
- Metropolitan courts
  - Property confiscated by police department
    - Custody by court clerk .. 2.56.030
    - Disposal conditions 2.56.040
- Metropolitan transportation licensing commission
  - Duties of chief of police and chief traffic engineer 2.100.040
  - Duties of the police department 2.100.045
- Miscellaneous driving rules
  - Attempting to elude police officers 12.68.200
- Offenses by or against public officers and government. 11.04.010 et seq.
  - See: PUBLIC PEACE, MORALS AND WELFARE
- Parking enforcement patrol... 2.44.070
- Parks, recreational facilities and cemeteries
  - Vehicles and traffic
    - Compliance with police and park directions required 13.24.250
- Pedicabs and pedal carriages
  - Certificate of public convenience and necessity
    - Police officers, enforcement by..... 6.75.100
- Photocopying fees for police reports 2.44.080
- Police officer
  - Defined..... 12.04.270
- Powers, duties and responsibilities..... 2.44.020
- Presentation of gun and badge to retiring officers 2.44.110
- Reports to be submitted to the metropolitan council 2.44.115
- Retired law enforcement animals..... 2.44.085
- School crossing guard division
  - Created 2.44.120
  - Duties of personnel..... 2.44.160
  - Qualifications for employment 2.44.150

POLICE DEPARTMENT (Cont'd.)
- Rules and regulations applicable to personnel
  - Exceptions
    - Appointment of new members..... 2.44.140
  - Supervision
    - Limitations on police authority 2.44.130
  - Suspension, disciplinary action and dismissal
    - Employee rights..... 2.44.170
- Special police commission
  - Qualifications for issuance to officers of other cities..... 2.44.100
- Special police commissions, security guard directives, and handgun permits/written directives..... 2.44.090
- Taxicabs
  - Drivers' permits
    - Criminal background investigation 6.72.130
- Tow-in lots
  - Police department jurisdiction 12.72.010
- Vehicles and traffic regulations
  - Obedience to enforcement officers 12.08.060
  - Traffic direction and enforcement authority of police and fire department officials... 12.08.050
- Wrecker and towing services. 6.80.010 et seq.
  - See: WRECKER AND TOWING SERVICES
- Zones, districts or precincts established
  - Assignment of personnel .. 2.44.040

POLICIES. See: PROGRAMS AND POLICIES

POLLING PLACES. See: ELECTIONS

POLLUTION
- Air pollution control ..... 10.56.010 et seq.
  - See: AIR POLLUTION
- Parks, recreational facilities and cemeteries 13.24.460

POWERS
Air pollution control board... 10.56.090
Assistant public defender 2.16.010
Auditorium commission..... 2.116.030
Beer permit board..... 7.04.050
Board of mechanical, plumbing, and electrical examiners and appeals .. 2.76.080
Charter revision commission . 2.120.090
Community education commission 2.160.050
Department of codes administration..... 2.20.020
After hours establishments. 6.06.050
Rental inspections 16.33.110
Department of general services 2.32.030
Director 2.32.020
Department of law 2.40.190
Director of finance 2.24.020
Emergency communications district 2.156.030
Employee award programs
Award board..... 3.60.070
Suggestion award board ... 3.60.030
Fair employment and housing practices human relations commission.... 11.20.100
Health department..... 2.36.020
Historical commission 2.128.060
Justice integration services... 2.56.450
Lobbyist registration and disclosure
Administration of provisions 2.196.030
Mayor's powers and duties during proclaimed emergencies..... 2.08.080
Metro beautification and environment commission 2.152.040
Metropolitan action commission 2.108.050
Metropolitan attorney 2.40.010
Metropolitan courts
Parole and probation office 2.56.170
Traffic violations bureau... 2.56.210
Metropolitan highway and transportation safety coordinating council 2.168.010
Metropolitan human relations commission 2.132.070
POWERS (Cont'd.)
Metropolitan Nashville Arts Commission..... 2.112.040
Metropolitan safety advisory board..... 2.96.050
Police department 2.44.020
PRISONS AND PRISONERS
Aiding escape of persons in custody..... 11.04.040
Failure to pay or secure a fine
Commitment to workhouse 1.24.040
Graffiti
Reward for information leading to arrest and conviction of violator. 11.26.055
Health department
Inspection
Charitable institutions, jails and other metropolitan institutions confining persons .. 2.36.070
Metropolitan jail and workhouse ..... 1.16.010 et seq.
See: METROPOLITAN JAIL AND WORKHOUSE
Registration of convicts
Change of address
Notification requirements 1.20.020
Failing or refusing to register
Giving false information 1.20.030
Registration of certain persons required when
Information required 1.20.010
Restoration of citizenship.. 1.20.040
Rescuing persons in custody . 11.04.050
PROBATE COURT
County judge
Alcohol Diversion and Preventive Treatment (ADAPT) Program supervisory authority . 2.56.300
PROBATION
Metropolitan courts
Division of probation ..... 2.56.100 et seq.
See: COURTS
Parole and probation office 2.56.140 et seq.
See: COURTS

PROCESSIONS. See:
PARADES
PROCUREMENT CODE
Assistance to small, disadvantaged, and service-disabled veteran owned businesses
Compliance with federal requirements 4.44.060
Definitions of terms used in this article 4.44.010
Discretionary duties of the purchasing agent 4.44.040
Mandatory duties of the purchasing agent 4.44.030
Report to the standards board and the council . 4.44.050
Statement of policy and its implementation 4.44.020
Discrimination in employment
Affidavit of compliance Contract requirements ... 4.28.020
Equal opportunity requirements 4.28.010
Violations
Penalty 4.28.030
Equal business opportunity program
Annual aspirational goal and project-by-project goals 4.46.060
Application 4.46.130
Bid requirements 4.46.070
Definitions 4.46.020
EBO program scope and applicability 4.46.040
Evaluation of bid for program compliance .. 4.46.080
Mentor-protégé initiative .. 4.46.090
MWBE designation 4.46.050
Office of minority and women business assistance 4.46.030
Policy and objectives 4.46.010
Program evaluation and sunset provision 4.46.120
Sanctions and penalties for non-compliance 4.46.100
Severability 4.46.110
Short title 4.46.001
PROCUREMENT CODE (Cont'd.)
Ethics in public contracting
Civil and administrative remedies against employees who breach ethical standards 4.48.110
Civil and administrative remedies against nonemployees who breach ethical standards 4.48.120
Criminal sanctions 4.48.040
Definitions 4.48.010
Employee conflict of interest 4.48.050
Employee disclosure requirements 4.48.060
General standards of ethical conduct 4.48.030
Gratuities and kickbacks ... 4.48.070
Prohibition against contingent fees 4.48.080
Recovery of value transferred or received in breach of ethical standards 4.48.130
Restrictions on employment of present or former employees 4.48.090
Restrictions on procurement from nonemployees 4.48.115
Statement of policy 4.48.020
Use of official information. 4.48.100
Waiver by procurement appeals board 4.48.140
General provisions
Application of this code ... 4.04.020
Authorization for the use of electronic transmissions 4.04.060
Definitions 4.04.050
Determinations retained in contract files 4.04.040
Procurement contract reports to be submitted to the council 4.04.080

PROCUREMENT CODE (Cont'd.)
Public access to procurement information 4.04.070
Severability 4.04.030
Title, purposes and rules of construction 4.04.010
Legal and contractual remedies
Applicability of Sections 4.36.040 through 4.36.060 ..... 4.36.040
Authority to debar or suspend 4.36.020
Authority to resolve contract and breach of contract controversies. 4.36.030
Authority to resolve protested solicitations and awards 4.36.010
Procurement appeals board
Establishment and membership 4.36.070
Issuance of decisions 4.36.090
Jurisdiction 4.36.100
Rules of procedure 4.36.080
Protest of solicitations or awards 4.36.110
Remedies after an award of contract 4.36.060
Remedies prior to an award of contract 4.36.050
Suspension or debarment proceedings 4.36.120
Modification and termination of contracts for supplies and services
Contract clauses and their administration 4.24.010
Contract modification and change orders 4.24.020
Procurement of construction contracts
Alternative methods of construction contracting management
Standards 4.20.010
Bid security 4.20.020
Bond forms and copies 4.20.040
Business tax license requirement 4.20.065

PROCUREMENT CODE (Cont'd.)
Contract and compliance board 4.20.130
Contract clauses and their administration 4.20.050
Contract performance and payment bonds 4.20.030
Declaration of policy
Payment of prevailing wages required 4.20.070
Effect of federal action on wage determinations .. 4.20.120
Fiscal responsibility 4.20.060
Minimum wages requirements
Basis 4.20.080
Payroll records
Contractor responsibility 4.20.100
Prevailing wages
Basis
Rate schedules to be specification for work
Posting 4.20.090
Utilization of apprentice, training, and certification programs
Employer information ... 4.20.105
Violation of Title 4 provisions
Penalty 4.20.110
Procurement organization
Advisory groups 4.08.110
Authority to contract for professional services .. 4.08.080
Centralization of procurement authority 4.08.070
Collection of data concerning public procurement 4.08.100
Delegation of authority by the purchasing agent .. 4.08.060
Division of purchases 4.08.030
Procurement regulations
Applicability 4.08.090
Procurement standards board
Creation and membership
Administration support 4.08.010
Powers and duties 4.08.020

PROCUREMENT CODE (Cont'd.)
Purchasing agent
Additional duties 4.08.050
Powers and duties 4.08.040
Source selection and contract formation
Cancellation of invitations to bid or requests for proposals 4.12.100
Competitive sealed bidding 4.12.030
Competitive sealed proposals 4.12.040
Contracts for correctional facility management services 4.12.240
Contracts for government relations and lobbying services 4.12.230
Contracts relating to solid waste collection and disposal 4.12.220
Cost or pricing data 4.12.130
Definitions 4.12.010
Emergency procurements .. 4.12.070
Intergovernmental cooperative purchasing 4.12.093
Methods of source selection 4.12.020
Multi-year contracts 4.12.160
Prequalification of suppliers
Lists of established suppliers 4.12.120
Privatization contracts 4.12.095
Purchases through state and other governments 4.12.090
Reporting of anticompetitive practices 4.12.190
Reports of procurement actions 4.12.210
Responsibility of bidders and offerors 4.12.110
Retention of procurement records 4.12.200
Right to audit records 4.12.180
Right to inspect plant 4.12.170
Sole source procurement ... 4.12.060
Term contracts 4.12.150
Types of contracts 4.12.140
Utilities 4.12.080
Specific procedures
Availability of funds prerequisite to purchasing 4.40.010
Recycled paper 4.40.050
Regulations concerning use of recycled materials 4.40.040
Surety bonds and insurance 4.40.030
Use of employees who are not legal residents of the United States prohibited 4.40.060
Written requisition required 4.40.020
Specifications
Definitions 4.16.010
Duties of the purchasing agent 4.16.030
Duties of the standards board 4.16.020
Economy and competition . 4.16.060
Energy efficiency standards and life cycle costs 4.16.080
Exempted items 4.16.040
Relationship with using agencies 4.16.050
Specifications prepared by architects, engineers and consultants 4.16.070
Supply management
Declaration of surplus property authorized when 4.32.030
Disposal of surplus, obsolete or unused supplies or equipment 4.32.020
Inventory 4.32.010
Notice of surplus property
Availability to metropolitan agencies 4.32.040
Sale of property
Rules and regulations ... 4.32.060
Sale of surplus property or supplies
Authorized when 4.32.050

PROGRAMS AND POLICIES
Affordable and workforce housing incentive grants. 2.213.010 et seq.
See: AFFORDABLE AND WORKFORCE HOUSING INCENTIVE GRANTS
Effective communication with individuals with disabilities in metropolitan government programs and services
Auxiliary aids and services 2.214.020
Grievance procedures 2.214.050
Notification 2.214.030
Policy 2.214.010
Response to request for auxiliary aid or service 2.214.040
Electronic formatting and online posting of reports 2.190.010 et seq.
See: ELECTRONIC FORMATTING AND ONLINE POSTING OF REPORTS
Lobbyist registration and disclosure 2.196.010 et seq.
See: LOBBYISTS
Procurement code 4.04.010 et seq.
See: PROCUREMENT CODE
Report and document filing policy
Persons and firms providing professional services to file final reports and recommendations with metropolitan clerk 2.188.010
PROPERTY
Board of property standards and appeals
Appeals from director and or board decisions 2.88.100
Appointment, qualifications, compensation and term of office 2.88.020
Control of excessive vegetation 2.88.090
PROPERTY (Cont'd.)
Created 2.88.010
Effect of board actions
Appeals stay imposition of order 2.88.070
Hearing petitions and procedures 2.88.060
Organization and officers 2.88.030
Quorum
Number of votes required for certain actions 2.88.040
Records of board decisions 2.88.080
Rules and regulations for conduct of business 2.88.050
Control of excessive vegetation 10.28.010 et seq.
See: VEGETATION
Department of finance 2.24.010 et seq.
See: FINANCE
Department of law
Settlement of claims for damage to metropolitan government property 2.40.110
Historical commission
Officers and bylaws
Authority to purchase property and other powers 2.128.040
Littering 10.24.010 et seq.
See: LITTERING
Low speed vehicles
Driver permit
Return of passengers' property 6.73.240
Metropolitan courts
Property confiscated by police department
Custody by court clerk 2.56.030
Disposal conditions 2.56.040
Metropolitan jail and workhouse
Prisoner incarceration procedures
Disposition of prisoner property 1.16.040
Metropolitan Nashville Airport Authority
Storage of property and equipment 2.60.100

PROPERTY (Cont'd.)
Metropolitan trustee to collect delinquent property taxes 2.12.030
Offenses against property .... 11.24.010 et seq.
See: PUBLIC PEACE, MORALS AND WELFARE
Parks, recreational facilities and cemeteries
Property
Removing or destroying. 13.24.490
Pedicabs and pedal carriages
Driver permit
Return of passengers' property..... 6.75.250
Procurement code ..... 4.04.010 et seq.
See: PROCUREMENT CODE
Property identification maps for tax assessment..... 5.24.010 et seq.
See: REVENUE AND FINANCE
Property standards ..... 16.24.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Property taxes..... 5.20.010 et seq.
See: REVENUE AND FINANCE
Removal of dead animals
Removal from private property 10.70.020
Rules of the road
Cutting through private property prohibited ... 12.16.210
Small business economic development incentive grants
Blighted property grants ... 2.212.030
Stormwater management
Notification to property owners upon amendments to flood maps..... 15.64.230
PROSPECTING
Offenses against property
Prospecting on metropolitan government property.. 11.24.110
PROSTITUTION
Disorderly house
Prostitution, gambling and rowdiness prohibited.. 11.12.060
PROSTITUTION (Cont'd.)
Offenses against public decency 11.16.030
PUBLIC DEFENDER
Additional assistant public defender
Appointment and term
Criminal law practice restrictions 2.16.040
Position created..... 2.16.020
Qualifications..... 2.16.030
Powers and duties
Restrictions..... 2.16.010
Special assistant public defenders..... 2.16.050
PUBLIC PEACE, MORALS AND WELFARE
Fair employment and housing practices
Certain practices not considered discriminatory 11.20.080
Complaints
Filing
Investigation
Hearing 11.20.110
Definitions..... 11.20.020
Discrimination prohibited
By employers 11.20.030
By employment agencies..... 11.20.040
By labor organizations .. 11.20.050
Employment advertisements 11.20.070
Recruitment for training programs..... 11.20.060
Hearing
Issuance of citations and warrants..... 11.20.120
Human relations commission
Powers and duties 11.20.100
Metropolitan government prohibited from discriminating 11.20.130
Purpose of chapter..... 11.20.010
Seniority or merit privileges not considered discriminatory 11.20.090
Graffiti ..... 11.26.010 et seq.
See: GRAFFITI

PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Miscellaneous offenses
Nonsubscription newspapers
Discontinuance of delivery required when 11.32.010
Wells, cisterns and shafts
Covering required 11.32.020
Offenses against property
Certain state offenses declared municipal misdemeanors 11.24.010
Defacing buildings under construction 11.24.040
Defacing public or private property
Penalty 11.24.030
Exhausting steam into public sewer 11.24.100
Library property
Unauthorized use
Defacement 11.24.020
Occupying premises without owner's permission
Defacing improvements . 11.24.060
Placing hazardous or offensive substances in public places 11.24.070
Placing obstructions on public property for private benefit 11.24.080
Prospecting on metropolitan government property.. 11.24.110
Trespassing on enclosed property
Defacing enclosure 11.24.050
Offenses against public decency
Controlled substances
Possession of paraphernalia prohibited
Exceptions 11.16.050
Debtors' names
Use in public announcements prohibited 11.16.070

PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Drug related activity
Termination of public housing tenancy 11.16.060
Indecent exposure 11.16.020
Lewd conduct in commercial establishments 11.16.040
Peeping or spying..... 11.16.010
Prostitution 11.16.030
Spitting in public conveyances 11.16.080
Offenses against public peace
Aggressive panhandling ... 11.12.090
Assembling to commit unlawful acts 11.12.020
Definitions..... 11.12.100
Discharging weapons 11.12.080
Disguises
Prohibited in public places
Exceptions..... 11.12.040
Disorderly conduct 11.12.010
Disorderly house
Prostitution, gambling and rowdiness prohibited 11.12.060
Excessive noise..... 11.12.070
False identification 11.12.030
Lewd or disruptive behavior on or around school grounds 11.12.050
Penalty 11.12.120
Prohibited conduct..... 11.12.110
Severability..... 11.12.130
Offenses against the person
Assault 11.08.010
Offenses by or against minors
Abandoning refrigerators in accessible places... 11.28.070
Admittance to certain movies not permitted
Penalty 11.28.130
Adults contributing to the delinquency of minors 11.28.020
Assault
Indecent exposure 11.28.030
Glue and related substances
Sale and use restrictions. 11.28.050
Improper advances
Offers to ride in vehicles 11.28.040

PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Indecent publications
Sale or exhibition in places frequented by minors 11.28.140
Juvenile curfew
Construction and severability..... 11.28.250
Curfew
Continuing evaluation 11.28.260
Notice 11.28.270
Curfew for juveniles 11.28.210
Defenses 11.28.220
Definitions 11.28.200
Enforcement procedures 11.28.240
Parental responsibility... 11.28.230
Location of certain businesses restricted near places frequented by minors..... 11.28.120
Loitering during school hours 11.28.080
Minors contributing to the delinquency of others. 11.28.010
Offenses by or against public officers and government
Aiding escape of persons in custody 11.04.040
Aiding police officers..... 11.04.010
Attempting to escape pursuing officer..... 11.04.030
False 911 calls..... 11.04.090
Giving false information
False alarms..... 11.04.080
High frequency police radio receiving set
Defined 11.04.110
Imitating sirens prohibited. 11.04.100
Impersonating a police officer 11.04.060
Interfering with alarm or communication systems..... 11.04.070
Police radio
Answering police radio calls prohibited..... 11.04.150
Application
Annual fee..... 11.04.130
Permit required..... 11.04.120
Police radio permits
Not transferable 11.04.140
PUBLIC PEACE, MORALS AND WELFARE (Cont'd.)
Rescuing persons in custody 11.04.050
Resisting or interfering with police..... 11.04.020
Residential landlord and tenant regulations
Required notice for
Assignment of a residential lease 11.22.020
Increases of residential rent..... 11.22.010
Termination of non-renewal of a lease 11.22.030
Termination of tenancy for purposes of eviction ("Norma Jean Upshaw Act"). 11.22.035
Urban services district
Firearms and other weapons ..... 11.36.010 et seq.
See: FIREARMS AND OTHER WEAPONS
PUBLIC RECORDS COMMISSION
Commission created..... 2.140.010
Membership
Qualifications and terms of office
Vacancy filling 2.140.030
Officers
Meetings
Quorum 2.140.040
Public records defined..... 2.140.020
Retention, possession, and destruction of records transferred to metro archives 2.140.070
Rules and regulations 2.140.050
Staff..... 2.140.060
PUBLIC RECORDS. See: RECORDS AND REPORTS
PUBLIC WORKS
Department of public works
Director of engineering
Qualifications 2.48.020
Divisions and units of the department established..... 2.48.010

PUBLIC WORKS (Cont'd.)
Special assistant to the director 2.48.030
Ferries
Regulations filed with department of public works 12.80.020
Fire department
Use of the department of public works' hazardous materials response vehicles for fire prevention, firefighting and the containment of hazardous materials... 2.28.111
Procurement code ..... 4.04.010 et seq.
See: PROCUREMENT CODE
PUBLICATIONS
Indecent publications
Sale or exhibition in places frequented by minors . 11.28.140
PURCHASES AND PURCHASING
Department of finance..... 2.24.010 et seq.
See: FINANCE
Historical commission
Officers and bylaws
Authority to purchase property and other powers 2.128.040
Metropolitan employee's consolidated charities program
Purchasing agent 2.218.060
Procurement code ..... 4.04.010 et seq.
See: PROCUREMENT CODE
Tourism and convention commission
Budgetary and fiscal matters
Rules for purchase of service agreements . 2.148.030
Traffic and motor vehicles
Parking meter zones
Free metered parking for clean technology vehicles 12.44.075

— Q —

QUALIFICATIONS
Assistant public defender 2.16.030
Board of fire and building code appeals 2.80.020
Board of property standards and appeals 2.88.020
Charter revision commission . 2.120.040
Department of public works
Director of engineering 2.48.020
Department of water and sewer services
Assistant directors 2.52.020
Fire department 2.28.220
Metropolitan human relations commission 2.132.030
Public records commission... 2.140.030
School crossing guard division 2.44.150
Special police commission ... 2.44.100
Tourism and convention commission 2.148.010
QUARANTINE
Disease control..... 10.16.010 et seq.
See: DISEASES AND DISEASE CONTROL
Rodents, insects and other pests
Quarantine of premises 10.32.150

— R —

RABIES
Animals and fowl ..... 8.04.020 et seq.
See: ANIMALS AND FOWL
RADIOS
Offenses by or against public officers and government
Police radio..... 11.04.110 et seq.
See: PUBLIC PEACE, MORALS AND WELFARE
RAILROADS AND TRAINS
Pedestrians
Obedience to railroad signals..... 12.52.100
Railroad sign or signal
Defined..... 12.04.280
Railroad train
Defined..... 12.04.285

RAILROADS AND TRAINS (Cont'd.)
- Railroads and grade crossings
  - Bridges and other structures over public ways 12.76.130
  - Children loitering near railroad tracks
    - Arrest authorized when . 12.76.170
    - Parent or guardian responsibility..... 12.76.160
  - Flashing signals
    - Installation and maintenance..... 12.76.060
    - Location 12.76.040
    - Operation 12.76.050
    - Required at grade crossings
      - Specifications..... 12.76.030
    - Right to withdraw permission for operation..... 12.76.070
  - Gates or flagmen required at crossings when..... 12.76.080
  - Grade crossings where all vehicles must stop 12.76.100
  - Liability limitations concerning signal lights and appurtenances 12.76.120
  - Loitering around railroad depot, tracks or yard prohibited 12.76.150
  - Speeds for railroad trains .. 12.76.020
  - Survey and classification of railroad grade crossings
    - Rules and regulations for use 12.76.010
  - Tunnels near or under streets 12.76.140
  - Vehicles to obey signals indicating approach of trains 12.76.090
  - Vehicles which must stop at all grade crossings . 12.76.110

RATS
- Rodents, insects and other pests ..... 10.32.010 et seq.
- See: PESTS AND PEST CONTROL

REAL ESTATE
- Department of finance
  - Division of public property administration
    - Metropolitan government real estate..... 2.24.220 et seq.
    - See: FINANCE
- Occupying premises without owner's permission
  - Defacing improvements ... 11.24.060
- Procurement code ..... 4.04.010 et seq.
- See: PROCUREMENT CODE

RECORDS AND REPORTS
- Automobile repair and service
  - Records required 6.42.020
- Board of mechanical, plumbing, and electrical examiners and appeals
  - Decisions of the board—recordkeeping 2.76.120
- Board of property standards and appeals
  - Records of board decisions 2.88.080
- Booting services
  - Equipment and operation
    - Operating records 6.81.120
- Cable communications franchise and regulations
  - Operation and reporting provisions 6.08.070
- Commercial solicitors
  - Records..... 6.64.150
- Department of finance
  - Title VI implementation plans and annual reports..... 2.24.103
- Department of law
  - Delinquent tax reports transmitted to department 2.40.080
  - Reporting significant litigation and judgments 2.40.115
- Downtown Central Business Improvement District (Downtown CBID)
  - District annual reporting... 2.177.062
- Dry warehouses for storage of food 10.08.030

RECORDS AND REPORTS (Cont'd.)
- Electronic formatting and online posting of reports — 2.190.010 et seq.
  - See: ELECTRONIC FORMATTING AND ONLINE POSTING OF REPORTS
- Expungement of public records regarding violations — 1.24.050
- Fiber optic communications services, franchises for — 6.26.250
- Financial policies
  - Debt report to metropolitan council — 5.04.110
- Fire department
  - Investigation of fires
    - Recordkeeping — 2.28.140
  - Personnel rules and regulations
    - Copies filed as public records — 2.28.090
- Firearms and other weapons
  - Urban services district — 11.36.030 et seq.
    - See: FIREARMS AND OTHER WEAPONS
- Health department
  - False or misleading statements in documents or reports — 2.36.160
  - Public inspection authorized when — 2.36.130
- Horse-drawn carriage service — 12.54.110
- Hotel occupancy privilege tax — 5.12.070
- Industrial waste discharges
  - Compliance schedule and reports — 15.60.270
  - Discharge permits
    - Repeat sampling and reporting/notice of violation — 15.60.288
- Lobbyist registration and disclosure
  - Lobbying and expense report requirements — 2.196.060
- Low speed vehicles
  - Equipment and operation
    - Inspectors; reporting or citing violations — 6.73.490
    - Records and reports — 6.73.390

RECORDS AND REPORTS (Cont'd.)
- Metropolitan courts
  - DUI school staffing and records — 2.56.560
  - Parole and probation office
    - Investigation of petitioners for suspended sentences or paroles
      - Reports — 2.56.180
  - Traffic safety school staffing and records — 2.56.520
- Metropolitan Nashville Airport Authority
  - Accident reports — 2.60.060
- Metropolitan trustee
  - Storage of certain obsolete tax records
    - Duties and reports — 2.12.020
- Midtown Central Business Improvement District (MBID)
  - Annual reporting — 2.179.100
- Monthly revenue collection reports — 5.04.080
- Moving companies
  - Reporting requirements — 6.44.010
- Officers and employees; personnel regulations
  - Metropolitan employee benefit system generally
    - Annual report to the council — 3.08.260
- Official street and alley acceptance and maintenance record; adoption — 13.08.010
- Other passenger vehicles for hire
  - Certification of public convenience and necessity
    - MTLC notification—Quarterly reports required — 6.74.070
  - Operations
    - MTLC staff—Reporting or citing violations — 6.74.440
    - Operating records and reports — 6.74.330

RECORDS AND REPORTS (Cont'd.)
- Pedicabs and pedal carriages
  - Equipment and operation
    - Inspectors; reporting or citing violations 6.75.550
    - Records and reports 6.75.420
- Police department
  - Reports to be submitted to the metropolitan council 2.44.115
- Procurement code ..... 4.04.010 et seq.
  - See: PROCUREMENT CODE
- Public records commission ... 2.140.010 et seq.
  - See: PUBLIC RECORDS COMMISSION
- Public swimming pools 10.48.100
- Report and document filing policy ..... 2.188.010 et seq.
  - See: PROGRAMS AND POLICIES
- Scrap tires
  - Reporting 10.30.040
- Social security 3.48.070
- Taxicabs
  - Certificate of public convenience and necessity
    - Quarterly reporting and fees 6.72.070
  - Daily manifests 6.72.230
  - Operating records and reports 6.72.280
- Traffic and motor vehicles
  - Traffic-control devices
    - Traffic calming projects . 12.12.190
- Urban services district regulations
  - Bankruptcy, close-out and similar sales 6.92.050
  - Firearms and other weapons ..... 11.36.030 et seq.
    - See: FIREARMS AND OTHER WEAPONS
  - Pawnbrokers, secondhand dealers and junk dealers
    - Automobile dealers 6.100.050
    - Book sales 6.100.060
    - Daily reports 6.100.030
    - Jewelry 6.100.080

RECORDS AND REPORTS (Cont'd.)
- Metal items 6.100.090
- Plumbing material 6.100.110
- Waste management
  - Disposal facilities, fees and charges
    - Periodic reports 10.20.395
  - Waste management plan report 10.20.400
- Weights and measures
  - Inspection records and reports 6.76.100
- Wrecker and towing services . 6.80.010 et seq.
  - See: WRECKER AND TOWING SERVICES

RECYCLING
- Procurement code
  - Specific procedures
    - Recycled paper 4.40.050

REFRIGERATORS
- Abandoning refrigerators in accessible places 11.28.070

REGISTRATION
- After hours establishments ... 6.06.020
- Defined 12.04.295
- Hotels and rooming houses ... 6.28.010 et seq.
  - See: HOTELS/MOTELS
- Registration of convicts ..... 1.20.010 et seq.
  - See: PRISONS AND PRISONERS
- Solid fuel sales or hauling .... 6.68.130 et seq.
  - See: FUEL AND GAS
- Trailer courts
  - Register of coaches and occupants 10.40.160
- Vehicles
  - State registration plates .... 12.08.080 et seq.
    - See: TRAFFIC AND MOTOR VEHICLES

RENT AND RENTING
- Department of finance
  - Division of public property administration
    - Organization and operation
      - Public property
        - Leasing, rent collection, sale and disposal ... 2.24.210

RENT AND RENTING (Cont'd.)
Rental inspections..... 16.33.010 et seq.
See: BUILDINGS AND CONSTRUCTION

REPORTS. See: RECORDS AND REPORTS

RESCUE SERVICES
Division of emergency ambulance and rescue service 2.28.030
Obedience to orders of emergency ambulance and rescue service personnel 2.28.050

RESOLUTIONS. See: LAWS, ORDINANCES AND RESOLUTIONS

RETAILERS
Retailers' sales tax..... 5.28.010 et seq.
See: REVENUE AND FINANCE

RETIREMENT
Metropolitan employee benefit system generally. 3.08.010 et seq.
See: PERSONNEL
Retired law enforcement animals..... 2.44.085

RETURNED CHECKS. See: CHECKS

REVENUE AND FINANCE
Financial policies
Contracts and agreements
Depositories for metropolitan funds
Contracts with depositories..... 5.08.020
General provisions
Approval of certain grant contracts... 5.04.076
Architectural contracts..... 5.04.040
Depositories for metropolitan funds
Collateral security
Loss and default recovery 5.08.030
Contracts with depositories
Authority of mayor ... 5.08.020

REVENUE AND FINANCE (Cont'd.)
Daily deposits
Authority of metropolitan treasurer 5.08.040
Deposits from construction contractors
Custodial services 5.08.050
Legal depositories established 5.08.010
General provisions
Acceptance of donations 5.04.120
Acceptance of funds
Property sold or forfeited 5.04.050
Applications subject to council approval ... 5.04.075
Appropriations from general fund reserve fund (four percent fund)..... 5.04.015
Approval of certain grant contracts 5.04.076
Approval of internal agreements by metropolitan council 5.04.065
Architectural contracts
Space utilization committee 5.04.040
Cost itemization for capital projects..... 5.04.150
Debt management policy required 5.04.105
Debt report to metropolitan council 5.04.110
Equipment or automobile leases
Approval required when 5.04.020
Fund balance reserve policy required..... 5.04.170
Funds collected
Checks made payable to metropolitan government..... 5.04.010
Grants made to nonprofit organizations..... 5.04.070

REVENUE AND FINANCE (Cont'd.)
- Land leases or franchises
  - Disclosure of ownership 5.04.030
- Limitation on use of metropolitan government funds for signage 5.04.100
- Merit-based grant program 5.04.130
- Monthly revenue collection reports ... 5.04.080
- Music City Center PILOTs funding affordable and workforce housing . 5.04.160
- Returned check charge .. 5.04.012
- Review of fees charged by the metropolitan government
  - Submission of report to the metropolitan council 5.04.060
- Litter fee for individuals convicted of DUI 5.04.090
- Public art financing
  - Definitions 5.10.010
  - Duties of the commission 5.10.030
  - Sources of funding 5.10.020
  - Submission of finance communications from the State of Tennessee to the metropolitan council 5.04.115
- Tax increment financing
  - Additional plan requirements 5.06.060
  - Allocation of Incremental tax revenues 5.06.030
  - Annual reporting 5.06.040
  - Capture of incremental tax revenues..... 5.6.020
  - Definitions 5.06.010
  - Use of incremental tax revenues..... 5.06.050

REVENUE AND FINANCE (Cont'd.)
- Tree canopy restoration and maintenance—financing
  - Allocation of funding ... 5.11.030
  - Definitions 5.11.010
  - Duties of the metro water services stormwater division 5.11.050
  - Funding cap..... 5.11.040
  - Sources of funding 5.11.020
  - Sunset provision 5.11.060

Taxes
- Commercial property assessed clean energy and resilience (C-PACER) program
  - Application and review.. 5.22.070
  - C-PACER financing..... 5.22.050
  - C-PACER lien..... 5.22.060
  - Collection and enforcement; delinquencies 5.22.090
  - Definitions 5.22.020
  - Establishment; legislative intent.... 5.22.010
  - Fees..... 5.22.100
  - No liability..... 5.22.120
  - Program administration . 5.22.040
  - Program guidelines..... 5.22.080
  - Severability 5.22.110
  - Territory 5.22.030
- Hotel occupancy privilege tax
  - Additional tax for convention center
    - Authorized 5.12.120
    - Distribution of funds.. 5.12.130
    - Termination of tax 5.12.140
  - Additional tax for enclosed stadium authorized..... 5.12.150
  - Administration and enforcement..... 5.12.100
  - Collection
    - Invoice procedure..... 5.12.040
  - Definitions 5.12.010
  - Delinquent payments
    - Penalties and interest . 5.12.090
  - Distribution of proceeds. 5.12.060
  - Offer to absorb tax prohibited 5.12.080

REVENUE AND FINANCE (Cont'd.)
- Records
  - Inspection 5.12.070
- Remittance
  - Accounting expense deduction 5.12.050
- Tax imposed
  - Amount 5.12.020
- Tax separate from other taxes 5.12.030
- Privilege taxes
- Business tax
  - Ad valorem tax not affected by article provisions 5.16.120
  - Collection 5.16.090
  - Disposition of funds .. 5.16.100
  - Intent of provisions ... 5.16.110
  - Phone number and physical mailing address of applicants required 5.16.085
  - Tax imposed
    - Statutory rates adopted
      - Copies on file 5.16.080
- Contract vehicles leaving the airport
  - Authorized 5.16.130
  - Distribution of tax 5.16.140
  - [Tax collection official.] 5.16.160
  - Termination of tax 5.16.150
- General regulations
  - Collection 5.16.020
  - Intent of provisions ... 5.16.040
  - Purpose of tax
    - Term
      - Exceptions 5.16.030
  - Tax imposed 5.16.010
- Sale of tickets to events at municipal stadium
  - Collection 5.14.030
  - Definitions 5.14.010
  - Distribution of proceeds 5.14.040
  - Intent of provisions ... 5.14.050
  - Tax imposed 5.14.020

REVENUE AND FINANCE (Cont'd.)
- Specific occupations and activities
  - Alcoholic beverage retail sales
    - Consumption on premises 5.16.050
  - Litigation 5.16.060
  - Marriage licenses 5.16.070
  - Museum privilege tax. 5.16.055
  - Victims assistance assessment 5.16.075
- Property identification maps for tax assessment
- Official maps adopted
  - Copies on file 5.24.010
- Property taxes
- Consolidated tax bills ... 5.20.020
- Delivery dates of tax rolls and bills to metropolitan trustee 5.20.030
- Failure to send or receive bills
  - Effect on tax obligation 5.20.070
- Historic properties owned by charitable institutions tax abatement program. 5.20.110
- Historic property improvement and restoration tax abatement program. 5.20.100
- Low-income elderly assistance program . 5.20.080
- Mailing dates of bills to property owners 5.20.040
- Proration of real property tax assessments affected by disaster certified by FEMA . 5.20.090
- Tax bills sent to property owners 5.20.010
- Retailers' sales tax
- Collection 5.28.040
- Delinquent payments
  - Penalties and interest . 5.28.060
- Disposition of funds 5.28.030
- Exceptions 5.28.020

REVENUE AND FINANCE (Cont'd.)
- Suits for recovery of illegally assessed or collected taxes 5.28.050
- Tax imposed
  - Amount
    - Application 5.28.010
- Vehicle taxes
  - Commercial vehicles privilege tax
    - Amount of tax
      - Schedule 5.32.030
    - Counterfeit license tags 5.32.070
    - Expiration of license
      - Proration of commercial vehicle regulatory license 5.32.080
    - License
      - Issuance conditions 5.32.020
    - License and payment of commercial vehicle regulatory license required
      - Exceptions 5.32.010
    - License tags
      - Display
        - Replacement if stolen 5.32.040
      - Replacement if lost. 5.32.050
      - Unauthorized use
        - Transfer 5.32.060
  - Passenger vehicle and motorcycle privilege tax
    - Definitions. 5.32.090
    - Delinquent license fees 5.32.160
    - Disposition of funds .. 5.32.170
    - Exceptions to article provisions
      - Free metro sticker provided when 5.32.100
    - Failure to display current license
      - Violation and penalty 5.32.150

REVENUE AND FINANCE (Cont'd.)
- License required
  - Fees
    - Exceptions..... 5.32.110
  - Registration required
    - Duties of county court clerk
      - Extension..... 5.32.120
  - Renewal fees
    - Proration
      - Exemption from Section 5.32.120 .... 5.32.130
  - Violation and penalty . 5.32.180
- Rental vehicle surcharge
  - Authorized 5.32.190
- Urban services district
  - Privilege taxes
    - Ad valorem tax not affected by chapter provisions..... 5.36.050
    - Alcoholic beverage retail sales
      - Consumption on premises..... 5.36.060
    - Collection..... 5.36.030
    - Disposition of funds..... 5.36.040
    - Intent of provisions 5.36.020
    - Tax imposed
      - Adopted
        - Copies on file 5.36.010
  - Tax on utility poles in streets
    - Rental fee required when
      - Amount
        - Penalty for nonpayment... 5.40.010

REWARDS
- Graffiti
  - Reward for information leading to arrest and conviction of violator. 11.26.055

RIGHT OF ENTRY
- Assistant fire marshal
  - Right of entry for inspection 2.28.210
- Fire department
  - Inspection of buildings
    - Right of entry 2.28.150

RIGHT OF ENTRY (Cont'd.)
Industrial waste discharges
Administration and enforcement
Right of entry 15.60.465
Waste management
Enforcement/right of entry. 10.20.090
RIGHT-OF-WAY
Defined 12.04.310
Fiber optic communications services, franchises for
Abandonment of right-of-way 6.26.170
Management of public rights-of-way for make ready work ..... 13.18.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Obstructing visibility at 13.08.050
Pedestrians
Pedestrian right-of-way in crosswalks
Driver responsibilities... 12.52.020
Right-of-way on sidewalks 12.52.050
Removal of dead animals
Removal from public right-of-way 10.70.010
Scooters, roller skates and in-line skates ..... 12.58.010 et seq.
See: SCOOTERS, ROLLER SKATES AND IN-LINE SKATES
Yield right-of-way ..... 12.16.150 et seq.
See: TRAFFIC AND MOTOR VEHICLES
RODENTS
Rodents, insects and other pests ..... 10.32.010 et seq.
See: PESTS AND PEST CONTROL
ROLLER SKATES. See also: SCOOTERS, ROLLER SKATES AND IN-LINE SKATES
Defined 12.04.317
Miscellaneous driving rules .. 12.68.090
ROOMINGHOUSES. See: HOTELS/MOTELS
RUNNING AT LARGE
Animal control regulations
Running at large of certain animals prohibited.... 8.20.050
Animals..... 8.04.120

— S —

SAFETY. See also: HEALTH AND SAFETY
Department of law
Employee safety program.. 2.40.210 et seq.
Films and live entertainers ... 6.24.010
Metropolitan Nashville Airport Authority..... 2.60.450 et seq.
See: AVIATION AND AIRCRAFT
Metropolitan safety advisory board
Composition
Vacancy filling 2.96.020
Created 2.96.010
Meetings 2.96.040
Officers..... 2.96.030
Powers and duties 2.96.050
Office of family safety ..... 2.61.010 et seq.
See: OFFICE OF FAMILY SAFETY
Other passenger vehicles for hire
Operations; vehicle safety devices 6.74.425
Safety zones
Defined..... 12.04.320
Driving through prohibited 12.16.230
Traffic-control devices..... 12.12.130
Taxicabs
Vehicle safety devices 6.72.425
SALES
Beer and alcoholic beverages of less than eight percent 7.08.010 et seq.
See: ALCOHOL AND ALCOHOLIC BEVERAGES
Department of finance
Division of public property administration
Organization and operation
Public property
Leasing, rent collection, sale and disposal... 2.24.210
Fireworks 10.68.060

SALES (Cont'd.)
Offering merchandise for sale on or near public property prohibited
Exceptions..... 13.08.040
Procurement code..... 4.04.010 et seq.
See: PROCUREMENT CODE
Retailers' sales tax..... 5.28.010 et seq.
See: REVENUE AND FINANCE
Urban services district regulations
Bankruptcy, close-out and similar sales
Cancellation of license.. 6.92.060
Conditions for conduct of sales..... 6.92.030
Exceptions to chapter applicability..... 6.92.020
License required
Fee..... 6.92.010
Records
Changing items during sales..... 6.92.050
Statement, inventory and affidavit..... 6.92.040
Curb service of food or merchandise
Regulations..... 13.32.160
Firearms and other weapons
Sale prohibited to certain persons..... 11.36.060
Sale to minors prohibited..... 11.36.080
SANITATION
Metropolitan Nashville Airport Authority..... 2.60.250
Removal of dead animals..... 10.70.010 et seq.
See: ANIMALS AND FOWL
Rendering plants
Handling diseased carcasses..... 6.60.090
Sanitary conditions..... 6.60.050
Summons issuance for sanitation, litter control and animal control violations..... 1.24.020
SANITATION (Cont'd.)
Waste management
Disposal facilities, fees and charges
Sanitary landfills established—Fee required..... 10.20.300
Sanitary landfill site—Extension of permit and use..... 10.20.060
SCHOOLS
Disease control
School attendance restrictions
Children with certain diseases..... 10.16.220
Immunization required.. 10.16.230
Lewd or disruptive behavior on or around school grounds..... 11.12.050
Metropolitan courts..... 2.56.510 et seq.
See: COURTS
Minors loitering during school hours..... 11.28.080
Parking
Parking near schools..... 12.40.100
School buses
Defined..... 12.04.325
Overtaking and passing restrictions..... 12.16.180
Use of mobile telephones while operating a school bus or other vehicle transporting children..... 12.68.210
Speed restrictions..... 12.20.070
SCOOTERS, ROLLER SKATES AND IN-LINE SKATES
Applicability..... 12.58.005
Clinging to vehicles..... 12.58.080
Motorized scooter
Defined..... 12.04.193
Non-motorized scooter
Defined..... 12.04.194
Parent and guardian responsibility concerning violation.... 12.58.090
Parks, recreational facilities and cemeteries..... 13.24.230
Reckless or destructive operation..... 12.58.040
Required equipment..... 12.58.060

SCOOTERS, ROLLER SKATES AND IN-LINE SKATES (Cont'd.)
Sidewalks
Uses permitted
Manner of operation 12.58.020
Skating single file 12.58.030
Speed restrictions 12.58.050
Streets or designated path
Uses permitted..... 12.58.010
Yield to right-of-way required when..... 12.58.070
SCRAP TIRES
Accumulation 10.30.030
Civil remedies; abatement of nuisance..... 10.30.070
Definitions 10.30.010
Enforcement 10.30.050
Reporting 10.30.040
Scrap tire management—Generally 10.30.020
Severability 10.30.080
Violations and penalties..... 10.30.060
SEATED SIGHTSEEING VEHICLES
Certificate of public convenience and necessity
Annual renewal..... 6.78.060
Application—Information and fees required 6.78.040
Findings—Issuance of certificate or additional permits 6.78.030
Insurance required..... 6.78.070
Issuance and denial—Fees. 6.78.050
Required and term 6.78.020
Suspension and revocation. 6.78.080
Definitions 6.78.010
Equipment and operation
Accidents..... 6.78.300
Application for permit to operate between 4:00 p.m. and 6:00 p.m.in the Urban Core—Information and fees required 6.78.320
Compliance with other laws 6.78.340
Disposition of disorderly passengers..... 6.78.330
Enforcement..... 6.78.350
SEATED SIGHTSEEING VEHICLES (Cont'd.)
Limitation of service due to weather conditions. 6.78.360
Passengers—Receiving and discharging by drivers; designated stops..... 6.78.310
Records and reports..... 6.78.290
Vehicle
Identification, to display 6.78.270
Ownership and control .. 6.78.260
Permit required..... 6.78.250
Requirements; safety standards..... 6.78.280
Vehicle and driver permits
Application—Approval or disapproval 6.78.120
Application—Information and fees required 6.78.100
Compliance with provisions 6.78.240
Conduct of drivers..... 6.78.200
Driver appearance 6.78.210
Expiration—Issuance and replacement fee..... 6.78.160
Fingerprint-based criminal background investigation..... 6.78.110
Hospitality training program—Participation required. 6.78.170
Issuance—Permit contents and display 6.78.130
New application after denial..... 6.78.150
Operation regulations for seated sightseeing vehicle..... 6.78.220
Required—Violations and term 6.78.090
Return of passengers' property 6.78.230
Revocation of a valid driver's license..... 6.78.190
Suspension, revocation, and appeal 6.78.180
Unpermitted drivers 6.78.140
Violations—Civil penalty schedules
Generally..... 6.78.370
Penalties—Additional regulations..... 6.78.370

SEATED SIGHTSEEING VEHICLES (Cont'd.)
Severability 6.78.380
SECOND CIVIL DISTRICT
Animal control regulations ... 8.24.010 et seq.
See: ANIMALS AND FOWL
SECONDHAND DEALERS. See: PAWNBROKERS AND SECONDHAND DEALERS
SEIZURE
Health department
Seizure, embargo, condemnation and disposal of prohibited materials 2.36.110
SENIOR CITIZENS
Property taxes
Low-income elderly assistance program ... 5.20.080
SEWERS AND SEWAGE. See: WATER, SEWERS AND OTHER PUBLIC SERVICES
SEXUAL HARASSMENT AWARENESS AND PREVENTION TRAINING
Implementation schedule 2.230.050
Persons covered 2.230.030
Supervisors responsible 2.230.040
Training 2.230.020
Program 2.230.010
SEXUALLY ORIENTED BUSINESSES
Application for license 6.54.040
Application for permit 6.54.070
Board of licensing for adult entertainment and safety 6.54.020
Definitions 6.54.010
Display of license or permit .. 6.54.100
Fees 6.54.090
Hours of operation 6.54.120
Invalidity of part 6.54.170
License required 6.54.030
Location of certain businesses restricted near places frequented by minors 11.28.120
Penalties and prosecutions ... 6.54.160
Permit required 6.54.060
SEXUALLY ORIENTED BUSINESSES (Cont'd.)
Prohibitions and unlawful sexual acts 6.54.140
Renewal of license or permit . 6.54.110
Responsibilities of the operator 6.54.130
Revocation or suspension of license/permit 6.54.150
Standards for issuance of a permit 6.54.080
Standards for issuance of license 6.54.050
SHARED URBAN MOBILITY DEVICES
Definitions 12.62.010
Termination of SUMD permits 12.62.020
SHERIFF'S DEPARTMENT
Metropolitan courts
Sheriffs office DUI school, creation of 2.56.550
Metropolitan jail and workhouse
Sheriff's authority 1.16.020
SIDEWALK CAFES
Urban services district regulations 13.32.165
SIGNS AND BILLBOARDS
Advertising signs and other advertising methods ..... 6.04.010 et seq.
See: ADVERTISEMENTS AND ADVERTISING
Buildings and construction
Building permits
Approved permits and construction hours signs
Posted at premises 16.28.230
Commercial solicitors
Prohibiting solicitation by posting signs 6.64.030
Department of finance
Division of public property administration
Billboard lease agreement restrictions 2.24.211
Excavations and obstructions
Commencement date and completion date signs required 13.20.095

SIGNS AND BILLBOARDS (Cont'd.)
Financial policies
General provisions
Limitation on use of metropolitan government funds for signage 5.04.100
Fire prevention code
No-smoking signs ..... 10.64.030 et seq.
See: FIRE PREVENTION AND PROTECTION
Metropolitan Nashville Airport Authority
Tenant sign restrictions 2.60.080
Miscellaneous driving rules
Detour signs
Driver obedience required 12.68.120
Nonconforming uses, structures, lots and signs 17.40.640 et seq.
See: ZONING (Title 17)
One-way streets and alleys
Signs to regulate direction of traffic 12.28.020
Parking
Sign requirements and use of curb/street painting 12.40.020
Pawnbrokers, secondhand dealers and junk dealers
Urban services district regulations..... 6.100.010
Posting of political signs
Near polling places 1.12.030
On telephone or light poles 1.12.020
Railroad sign or signal
Defined..... 12.04.280
Sign procedures ..... 17.40.490 et seq.
See: ZONING (Title 17)
Smoking in metropolitan buildings, prohibition of
Posting of signs..... 10.18.040
Through streets and stop intersections..... 12.24.020
Traffic-control devices ..... 12.12.010 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Traffic-control signal
Defined..... 12.04.405

SIGNS AND BILLBOARDS (Cont'd.)
Wrecker and towing services
License for operation
Signage; unpaid parking violations 6.80.195
Zoning regulations ..... 17.32.010 et seq.
See: ZONING (Title 17)
SLEDDING
Parks, recreational facilities and cemeteries 13.24.230
SMALL BUSINESS ECONOMIC DEVELOPMENT INCENTIVE GRANTS
Blighted property grants 2.212.030
Definitions..... 2.212.010
Development of rules and regulations 2.212.050
Generally 2.212.020
Grants subject to funding availability 2.212.040
SMOKING
Fire prevention code
No-smoking regulations ... 10.64.024 et seq.
See: FIRE PREVENTION AND PROTECTION
Fires and lighted cigarettes
Parks, recreational facilities and cemeteries 13.24.160
Prohibition of smoking in certain age-restricted venues
Definitions..... 10.19.010
Enforcement..... 10.19.030
Severability..... 10.19.050
Smoking and use of vapor products in age-restricted venues prohibited 10.19.020
Violations and penalties ... 10.19.040
Prohibition of smoking in metropolitan buildings
Definitions..... 10.18.010
Penalties..... 10.18.050
Posting of signs..... 10.18.040
Smoking in non-metropolitan government buildings. 10.18.030

SMOKING (Cont'd.)
Smoking on and near hospital property prohibited 10.18.045
Smoking prohibition..... 10.18.020
Vaping on and near hospital property prohibited 10.18.046
SNOW AND ICE
Ice sold from vehicles
Scale required 6.76.180
Urban services district regulations
Snow and ice removal
Owner responsibility 13.32.040
SOCIAL SECURITY
Personnel regulations ..... 3.48.010 et seq.
See: OFFICERS AND EMPLOYEES
SOCIAL SERVICES
Metropolitan social services commission ..... 2.144.010 et seq.
See: METROPOLITAN SOCIAL SERVICES COMMISSION
SOLICITATIONS
Commercial solicitors
Administrative regulations. 6.64.170
Definitions..... 6.64.020
False or deceptive representation prohibited 6.64.100
Identification badge
Duty to display..... 6.64.110
Required 6.64.050
Revocation 6.64.130
No-solicitation list..... 6.64.040
Permit
Appeals for denial or revocation—Hearings 6.64.160
Application contents; fees 6.64.060
Denial..... 6.64.090
Duration; renewal 6.64.070
Duty to exhibit 6.64.110
Nonrenewal or revocation..... 6.64.140
Persons prohibited 6.64.080
Required 6.64.050
Transfer prohibited..... 6.64.120
Prohibiting solicitation by posting signs..... 6.64.030
SOLICITATIONS (Cont'd.)
Purpose..... 6.64.010
Records..... 6.64.150
Severability..... 6.64.190
Solicitation restricted to daylight hours 6.64.035
Violations and penalties ... 6.64.180
Low speed vehicles
Equipment and operation
Soliciting
Business..... 6.73.460
Passengers..... 6.73.450
Prohibited manner of . 6.73.470
Metropolitan Nashville Airport Authority..... 2.60.260
Parks, recreational facilities and cemeteries
Soliciting passengers prohibited
Exceptions 13.24.360
Pedicabs and pedal carriages
Equipment and operation
Soliciting
Business..... 6.75.500
Passengers..... 6.75.490
Prohibited manner of . 6.75.510
Soliciting votes near polling places 1.12.060
Taxicabs ..... 6.72.370 et seq.
See: TAXICABS
SOLICITORS. See: PEDDLERS AND SOLICITORS
SOLID WASTE
Waste management
Adoption of rules and regulations..... 10.20.040
Brush collection 10.20.085
Container requirements, ownership and use; scavenging..... 10.20.110
Definitions..... 10.20.010
Director authority..... 10.20.030
Director of waste services
Powers and duties 10.20.004
Qualifications and compensation 10.20.003
Disposal and placement of battery boxes and parts 10.20.080
Disposal facilities, fees and charges
Calculation of fees 10.20.390

SOLID WASTE (Cont'd.)
Collection of fees 10.20.370
Convenience center and special waste fees .. 10.20.365
Periodic reports 10.20.395
Providers of solid waste disposal service—Fees—Other rules .. 10.20.380
Sanitary landfills established—Fee required 10.20.300
Solid waste generator fees 10.20.360
Tip fee—Wood waste, chipper residue and yard waste..... 10.20.330
Tip fees generally 10.20.310
Tip fees—Increased for out-of-county users. 10.20.340
Vehicle requirements—Dumping times..... 10.20.350
Dumpster collection and requirements..... 10.20.072
Enforcement/right of entry. 10.20.090
Exemptions..... 10.20.050
Information required on
Dump trucks—Violation and penalty..... 10.20.070
Vehicles transporting used tires—Violation and penalty 10.20.075
Metropolitan government authority..... 10.20.020
No dumping permitted..... 10.20.130
Nuisance declared when ... 10.20.120
Private collection permits.. 10.20.100
Recycling services to be made available by waste haulers 10.20.105
Responsibilities..... 10.20.002
Sanitary landfill site—Extension of permit and use 10.20.060
Urban services district—Waste collection and disposal
Building debris—Responsibility for removal 10.20.250
Collection requirements. 10.20.220
Director of waste services authority .. 10.20.200
SOLID WASTE (Cont'd.)
Hazardous, pathogenic and radioactive waste..... 10.20.240
Public trash receptacles—Purpose—Specifications 10.20.260
Waste management development review fee..... 10.20.500
Waste management plan report..... 10.20.400
Waste services department created..... 10.20.001
Yard waste, corrugated cardboard and electronic waste banned from solid waste collection 10.20.095
SOUTH NASHVILLE IMPROVEMENT DISTRICT
Annual budget 2.178.070
Definitions..... 2.178.040
District created, boundary.... 2.178.010
District management corporation
Dissolution of 2.178.090
Generally..... 2.178.050
Powers..... 2.178.060
Estimated costs and rate of levy; special assessment procedure 2.178.080
Liberal construction..... 2.178.030
Purposes and mission 2.178.020
SPECIAL EVENTS
Mayor's office of film and special events ..... 2.62.010 et seq.
See: MAYOR
SPECIAL MOBILE EQUIPMENT
Defined 12.04.350
SPILLAGE
Metropolitan Nashville Airport Authority..... 2.60.450 et seq.
See: AVIATION AND AIRCRAFT
SPITTING
Spitting in public conveyances..... 11.16.080
SQUIRRELS. See: ANIMALS AND FOWL

STATE
Defined 12.04.360
STORAGE
Automobile repair and service
Limitation on storage of automobiles..... 6.42.030
Dry warehouses for storage of food ..... 10.08.010 et seq.
See: FOOD AND FOOD STORAGE
Metropolitan Nashville Airport Authority
Storage of property and equipment 2.60.100
Metropolitan trustee
Storage of certain obsolete tax records
Duties and reports..... 2.12.020
Rodents, insects and other pests
Buildings in which foodstuffs are stored .. 10.32.030
Storage and disposal of garbage 10.32.120
Storage of animal feed..... 10.32.110
Tow-in lots
Rules and regulations for operation and collection of storage charges 12.72.020
Stolen motor vehicles
Storage, notice and removal requirements 12.72.080
Wrecker and towing services
Emergency wrecker service
Storage facility requirements 6.80.575
STORMWATER MANAGEMENT
General regulations ..... 15.64.010 et seq.
See: WATER, SEWERS AND OTHER PUBLIC SERVICES
Industrial waste discharges
Discharges to publicly owned treatment works
Unpolluted storm water prohibited
Exceptions..... 15.60.100
STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Acceptance of private roads
Appropriation of public funds prior to road acceptance..... 13.10.020
Criteria for accepting private roads..... 13.10.010
Findings by the metropolitan council prior to road acceptance..... 13.10.030
Adopt-a-street program
Administration..... 2.198.020
Memoranda of understanding with persons volunteering to clean up or maintain certain public ways..... 2.198.030
Program established 2.198.010
Severability..... 2.198.040
Advertising signs and other advertising methods..... 6.04.010 et seq.
See: ADVERTISEMENTS AND ADVERTISING
Alleys. See within this title: Streets, Alleys and Sidewalks
Arterial street
Defined..... 12.04.015
Bicycles..... 12.60.010 et seq.
See: BICYCLES
Controlled-access highway
Defined..... 12.04.045
Cruising on public streets .... 12.69.010 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Driveways
Abandoned driveways 13.12.170
Applications
Appeals 13.12.080
Aprons required 13.12.200
Authorization
Application 13.12.060
Expiration..... 13.12.070
Connection with through lane
Curve radius 13.12.130
Construction
Authorization required .. 13.12.050
Regulations 13.12.020

STREETS, SIDEWALKS AND OTHER PUBLIC WAYS (Cont'd.)
- Construction costs
  - Owner responsibility 13.12.090
- Deviations 13.12.160
- Dimension and location requirements 13.12.110
- Driveway defined 13.12.010
- Duty of property owner 13.12.040
- Location 13.12.100
- Nonconforming driveways
  - Notice to remove
    - Failure to comply 13.12.180
- Parking lot size
  - Lot requirements for off-street loading docks 13.12.150
  - Requirements 13.12.140
- Review of driveway application
  - Duty of chief engineer .. 13.12.030
- Sight distance requirements 13.12.120
- Sight obstruction prohibited when
  - Notice to remove
    - Failure to comply 13.12.190
- Driving on sidewalks 12.68.130
- Dynamic symbol of access
  - Effective date 13.27.020
  - Required 13.27.010
- Encroachments
  - Application fee 13.16.020
  - Encroachment without permit prohibited
    - Penalty for violation 13.16.010
  - Permits or privileges granted by council resolution
    - Fee 13.16.030
- Excavations and obstructions
  - Barricades required when .. 13.20.090
  - Commencement date and completion date signs required 13.20.095
  - Definitions 13.20.010
  - Emergency health orders, enforcement 13.20.045
  - Hours of work
    - Regulations 13.20.060
  - Interfering with warning lights prohibited 13.20.120

STREETS, SIDEWALKS AND OTHER PUBLIC WAYS (Cont'd.)
- Night work
  - Warning lights required . 13.20.110
- Penalty for violation 13.20.040
- Permission and notice required 13.20.020
- Permit 13.20.030
  - Bond and insurance required 13.20.050
- Policy compliance and exceptions 13.20.160
- Refilling excavation sites .. 13.20.130
- Regulations 13.20.150
- Replacement of sidewalks, pavements and other special structures required
  - Specifications 13.20.140
- Unguarded excavations prohibited 13.20.100
- Utility manholes
  - Testing for flammable or toxic gases required 13.20.070
  - Two work people required at all times 13.20.080
- Fees, in-lieu contributions and other assessments, estimates or payments ... 13.02.010
- Highway
  - Defined 12.04.120
- Intersection
  - Defined 12.04.140
- Laned roadway
  - Defined 12.04.145
- Littering ..... 10.24.010 et seq.
  - See: LITTERING
- Management of public rights-of-way for make ready work
  - Definitions 13.18.010
  - Make ready process 13.18.020
- Metropolitan Nashville Airport Authority 2.60.120
- Miscellaneous driving rules
  - Putting glass, nails or other injurious materials on highway
    - Clearing accident wreckage 12.68.150
- Motorcycles ..... 12.64.010 et seq.
  - See: MOTORCYCLES

STREETS, SIDEWALKS AND OTHER PUBLIC WAYS (Cont'd.)
Naming of public buildings
Ordinance required to name public buildings 13.26.010
Other requirements 13.26.020
Nashville Department of Transportation participation agreements
Definitions..... 13.21.010
Participation agreements with developers..... 13.21.020
Official street map
Additions
Prerequisites 13.04.050
Adoption 13.04.020
Adoption of map does not establish street..... 13.04.070
Amendments
Approval required
Traffic study..... 13.04.040
Board of adjustment 13.04.090
Building between mapped street lines prohibited. 13.04.080
Building permit
Issuance when
Expiration 13.04.110
Building restrictions
Relief from hardship procedure 13.04.100
Definitions..... 13.04.010
Judicial review of decisions of board of adjustment..... 13.04.120
Liberal construction 13.04.140
Property identification required for adoption or amendment 13.04.060
Recordation..... 13.04.030
Violations 13.04.150
Zoning regulations not affected..... 13.04.130
One-way streets and alleys ... 12.28.010 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Parks, recreational facilities and cemeteries
Cemeteries
Operation and maintenance
Responsibilities of the board and the metropolitan historical commission..... 13.24.050
Ownership of burial plots
Authority of board
Appeal 13.24.060
General regulations and administration
Construction 13.24.030
Definitions 13.24.010
Donations
Authority of board to accept
Exception 13.24.040
Scope 13.24.020
Regulated activities
Alcoholic beverages..... 13.24.090
Animals
Protection requirements..... 13.24.120
Running at large..... 13.24.130
Bathing and swimming.. 13.24.100
Boating 13.24.110
Construction work 13.24.140
Exhibitions and contests 13.24.150
Fires and lighted cigarettes..... 13.24.160
Fishing..... 13.24.170
Games 13.24.180
Horses and beasts of burden 13.24.190
Hours 13.24.080
Meetings, assemblies and ceremonies..... 13.24.200
Model airplanes, boats and autos..... 13.24.240
Peddling 13.24.210
Permits
Conditions
Revocation..... 13.24.070
Picnics 13.24.220
Skating and sledding 13.24.230
Unlawful activities
Advertising and sponsorship on park property..... 13.24.390
Aviation..... 13.24.400
Camping 13.24.410
Commercial fishing 13.24.420
Disorderly conduct..... 13.24.430
Explosives, fireworks and firearms..... 13.24.440
Gambling 13.24.450

STREETS, SIDEWALKS AND OTHER PUBLIC WAYS (Cont'd.)
Hunting and trapping wildlife
Carrying firearms..... 13.24.470
Plant life
Disturbing, removing or destroying 13.24.480
Polluting 13.24.460
Property
Removing or destroying 13.24.490
Vehicles and traffic
Areas of vehicle operation restricted. 13.24.300
Compliance with police and park directions required 13.24.250
Compliance with state and metropolitan traffic laws required 13.24.260
Driving instruction prohibited 13.24.340
Hitchhiking prohibited .. 13.24.350
Obstructing traffic prohibited 13.24.330
Operation off of paved roadway prohibited
Stalled vehicles..... 13.24.320
Parking..... 13.24.310
Reckless driving prohibited 13.24.270
Repair work on vehicles prohibited 13.24.380
Restrictions on certain vehicles 13.24.290
Soliciting passengers prohibited
Exceptions..... 13.24.360
Speed limits..... 13.24.280
Towing and projecting articles prohibited
Exceptions..... 13.24.370
Private road or driveway
Defined..... 12.04.275
Private snow plow service
Permits 13.32.050
Roadway
Defined..... 12.04.315
Rules of the road..... 12.16.010 et seq.
See: TRAFFIC AND MOTOR VEHICLES

STREETS, SIDEWALKS AND OTHER PUBLIC WAYS (Cont'd.)
Scooters, roller skates and in-line skates..... 12.58.010 et seq.
See: SCOOTERS, ROLLER SKATES AND IN-LINE SKATES
Sidewalks
Defined..... 12.04.335
General regulations. See within this title: Streets, Alleys and Sidewalks
Speed restrictions ..... 12.20.010 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Street
Defined..... 12.04.375
Honorary street signs 13.08.025
Streets, alleys and sidewalks
Deployment of surveillance or electronic data gathering devices onto public rights-of-way requires metropolitan council approval..... 13.08.080
Gravel runoff 13.08.090
Naming of private streets and roads 13.08.020
Obstructing visibility at intersections, driveways or rights-of-way 13.08.050
Offering merchandise for sale on or near public property prohibited
Exceptions 13.08.040
Official street and alley acceptance and maintenance record; adoption 13.08.010
Private installations in, on, over or under public way
Regulations 13.08.030
Street cleaning
Restricted hours of operation
Exceptions..... 13.08.060

STREETS, SIDEWALKS AND OTHER PUBLIC WAYS (Cont'd.)
- Street name changes
  - Procedure 13.08.015
- Transport of hazardous materials on public streets prohibited
  - Penalty 13.08.070
- Truck vending permit program established .. 13.08.100
- Through highway
  - Defined 12.04.385
- Through streets and stop intersections ..... 12.24.010 et seq.
  - See: TRAFFIC AND MOTOR VEHICLES
- Traffic-control devices ..... 12.12.010 et seq.
  - See: TRAFFIC AND MOTOR VEHICLES
- Urban services district
  - House numbering systems
    - Allotment of numbers
      - Display required when 13.28.030
    - East of Cumberland River 13.28.020
    - Removing or changing numbers prohibited. 13.28.040
    - West of Cumberland River 13.28.010
  - Parking lots, decks and garages
    - Compliance required
      - Variances 13.40.050
    - Definitions 13.40.010
    - Disabled driver parking in lots owned by the metropolitan government 13.40.070
    - Enforcement
      - Appeals 13.40.060
    - Operations
      - Restrictions 13.40.040
    - Provisions supplemental to building code 13.40.020
    - Safeguard requirements . 13.40.030
  - Sale of livestock on streets. 8.20.120
  - Street and sidewalk regulations
    - Barbed wire fences prohibited
      - Exceptions 13.32.120

STREETS, SIDEWALKS AND OTHER PUBLIC WAYS (Cont'd.)
- Burning leaves or trash prohibited 13.32.150
- Curb service of food or merchandise
  - Regulations 13.32.160
- Depositing wood, coal or lumber on sidewalks. 13.32.190
- Ditch digging
  - Permit required 13.32.020
- Dumping fires or burning cinders prohibited 13.32.140
- Encroachments prohibited
  - Notice to abate 13.32.080
- Gratings or cellar doors opening onto sidewalks
  - Restrictions 13.32.170
- Impoundment and disposal 13.32.105
- Injuring trees prohibited. 13.32.210
- New streets
  - Designation and naming 13.32.010
- Parklet and streatery 13.32.166
- Public nuisances prohibited 13.32.110
- Removal of obstructions
  - Offender's responsibility 13.32.100
- Repair and maintenance
  - Owner responsibility
    - Hold harmless agreement 13.32.030
- Sidewalk cafe dining facilities 13.32.165
- Snow and ice removal
  - Owner responsibility . 13.32.040
- Throwing articles from houses into street ... 13.32.200
- Washing vehicles on streets prohibited ... 13.32.220
- Tax on utility poles in streets ..... 5.40.010 et seq.
  - See: REVENUE AND FINANCE

SUBDIVISIONS
Planning commission
Commission authorized to adopt certain subdivision plat processing fees 2.136.010
SUBLEASING
Department of finance
Division of public property administration
Metropolitan government real estate
Leasing or subleasing conditions 2.24.230
SUITS AND SETTLEMENTS
Department of law ..... 2.40.100 et seq.
See: LAW, DEPARTMENT OF
SUMMONS AND WRITS
Summons issuance for sanitation, litter control and animal control violations 1.24.020
SWIMMING POOLS
Public swimming pools
Adoption of rules and regulations
Compliance required 10.48.030
Applicability and purpose of chapter..... 10.48.020
Application for permit 10.48.040
Definitions..... 10.48.010
Health and safety requirements..... 10.48.080
Inspection
Right of entry 10.48.110
Inspection and licensing fees
Classification of pools .. 10.48.070
Permit required
Expiration and transferability 10.48.060
Plans and specifications ... 10.48.050
Pool maintenance
Operation of equipment . 10.48.090
Records..... 10.48.100
Revocation of permits
Reissuance 10.48.120

— T —

TAXATION
Commercial property assessed clean energy and resilience (c-pacer) program..... 5.22.010 et seq.
See: REVENUE AND FINANCE
Department of law
Delinquent tax reports transmitted to department 2.40.080
Division of tax litigation... 2.40.090
Domestic partner benefits
Tax liability..... 3.14.050
Hotel occupancy privilege tax ..... 5.12.010 et seq.
See: REVENUE AND FINANCE
Mayor
Agreements with tax-exempt institutions for payment of metropolitan government services .. 2.08.020
Metropolitan trustee
Metropolitan trustee to collect delinquent property taxes 2.12.030
Storage of certain obsolete tax records
Duties and reports..... 2.12.020
Privilege taxes ..... 5.16.010 et seq.
See: REVENUE AND FINANCE
Procurement code ..... 4.04.010 et seq.
See: PROCUREMENT CODE
Property identification maps for tax assessment..... 5.24.010 et seq.
See: REVENUE AND FINANCE
Property taxes..... 5.20.010 et seq.
See: REVENUE AND FINANCE
Retailers' sales tax..... 5.28.010 et seq.
See: REVENUE AND FINANCE
Urban services district
Privilege taxes ..... 5.36.010 et seq.
See: REVENUE AND FINANCE

TAXATION (Cont'd.)
Tax on utility poles in streets ..... 5.40.010 et seq.
See: REVENUE AND FINANCE
Vehicle taxes ..... 5.32.010 et seq.
See: REVENUE AND FINANCE

TAXICABS
Bus and taxicab stands
Loading and unloading .... 12.48.070 et seq.
See: LOADING AND UNLOADING
Certificate of public convenience and necessity
Annual renewal 6.72.035
Application
Information and fees required 6.72.030
Commission notification ... 6.72.065
Findings
Issuance of certificate or additional permits .. 6.72.060
Probation, suspension and revocation 6.72.090
Proof of financial responsibility required 6.72.050
Quarterly reporting and fees
Disposition of revenue .. 6.72.070
Request for additional permits 6.72.040
Required 6.72.020
Transfers
Fee 6.72.080
Definitions 6.72.010
Drivers' permits
Application
Approval or disapproval. 6.72.140
Information and fees required 6.72.110
Company affiliation 6.72.175
Compliance with provisions 6.72.190
Criminal background investigation 6.72.130
Display of permit 6.72.170
Expiration
Issuance and replacement fee 6.72.160

TAXICABS (Cont'd.)
Hospitality training program
Participation required ... 6.72.165
Issuance
Contents 6.72.150
New application after denial 6.72.155
Permit required
Violations and term 6.72.100
Revocation of Tennessee driver's license 6.72.185
Suspension and revocation. 6.72.180
Equipment and operation
Accidents 6.72.290
Advertising on vehicles 6.72.420
Contract rates 6.72.450
Daily manifests 6.72.230
Disposition of disorderly passengers 6.72.365
Driver appearance 6.72.415
Duty to render service
Business requirements .. 6.72.220
Inspection and maintenance of vehicles
Compliance required 6.72.240
Inspectors to observe conduct
Reporting or citing violations 6.72.445
Liability insurance agreement 6.72.210
Map requirement 6.72.405
Operating records and reports 6.72.280
Passengers
Additional passengers permitted when
Charges 6.72.330
Maximum number 6.72.320
Receiving and discharging by drivers 6.72.340
Refusal to pay legal fare. 6.72.350
Payment of fare and receipts 6.72.270
Prohibited acts by driver ... 6.72.430
Prohibited manner of soliciting 6.72.400
Rate changes
Display in vehicle 6.72.260
Rate schedule 6.72.250

TAXICABS (Cont'd.)
Refusal to carry orderly passengers 6.72.360
Soliciting business 6.72.390
Soliciting passengers 6.72.370
Taxicab driver's bill of rights 6.72.440
Taxicab passenger's bill of rights 6.72.435
Taxicab stands
Established
Regulations 6.72.310
Prohibited vehicles 6.72.300
Taximeters 6.72.265
Toplight required 6.72.410
Vehicle age limit 6.72.245
Vehicle safety devices 6.72.425
Vehicle to display company name, color scheme insignia and numbering
Restrictions 6.72.200
Low speed vehicles
Equipment and operation
Taxicab stands; prohibited vehicles . 6.73.480
Metropolitan Nashville Airport Authority 2.60.310
Pedicabs and pedal carriages
Equipment and operation
Taxicab stands; prohibited vehicles . 6.75.520
Violation
Civil penalty schedules
Violation
Penalties 6.72.500

TELECOMMUNICATIONS
Department of finance
Department of information systems
Office of telecommunications 2.24.135 et seq.
See: FINANCE

TELEPHONES
Burglar and fire alarm systems
Automatic dialing devices . 10.60.060
False 911 calls 11.04.090
Telephone poles
Posting of political signs ... 1.12.020

TELEPHONES (Cont'd.)
Use of mobile telephones while operating a school bus or other vehicle transporting children 12.68.210

TERM OF OFFICE
Assistant public defender 2.16.040
Auditorium commission 2.116.020
Beer permit board 7.04.030
Bicycle and pedestrian advisory commission
Membership—
Appointment, compensation and term of office 2.153.020
Board of fire and building code appeals 2.80.020
Board of mechanical, plumbing, and electrical examiners and appeals
Appointment and qualifications of members and term of office 2.76.020
Board of property standards and appeals 2.88.020
Charter revision commission . 2.120.030
Community education commission 2.160.020
Emergency communications district 2.156.020
Historical commission 2.128.030
Metro beautification and environment commission 2.152.020
Metropolitan action commission
Appointment and term of chairman and members 2.108.020
Metropolitan human relations commission 2.132.030
Metropolitan Nashville Arts Commission 2.112.020
Nashville Entertainment Commission
Composition, membership, and term of office 2.147.030
Public, education and governmental access oversight committee 6.10.030
Public records commission ... 2.140.030

TERM OF OFFICE (Cont'd.)
Tourism and convention commission 2.148.020
THEFT
Tow-in lots
Stolen motor vehicles
Storage, notice and removal requirements 12.72.080
Urban services district
Stolen firearms 11.36.100
TIRES
Metal tire
Defined 12.04.170
Pneumatic tire
Defined 12.04.260
Scrap tire management ..... 10.30.010 et seq.
See: SCRAP TIRES
Solid rubber tire
Defined 12.04.340
TOBACCO AND TOBACCO PRODUCTS
Prohibition of smoking in certain age-restricted venues ..... 10.19.010 et seq.
See: SMOKING
Smoking in metropolitan buildings, prohibition of. 10.18.010 et seq.
See: SMOKING
TOURISM AND CONVENTION COMMISSION
Appointment, term of office and vacancy filling 2.148.020
Budgetary and fiscal matters
Rules for purchase of service agreements ... 2.148.030
Established
Qualifications of members. 2.148.010
TOURIST AND TOURISM
Tourism and convention commission ..... 2.148.010 et seq.
See: TOURISM AND CONVENTION COMMISSION
TOWING
Metropolitan Nashville Airport Authority..... 2.60.320
Parks, recreational facilities and cemeteries
Towing and projecting articles prohibited
Exceptions 13.24.370
TOWING (Cont'd.)
Wrecker and towing services
Equipment and operation
Towing of unauthorized vehicles 6.80.452
TOY VEHICLES
Model airplanes, boats and autos
Parks, recreational facilities and cemeteries 13.24.240
TRACTOR
Defined 12.04.395
TRAFFIC AND MOTOR VEHICLES
Alley
Defined 12.04.010
Arterial street
Defined 12.04.015
Authorized emergency vehicle
Defined 12.04.020
Automobile repair and service
Definitions..... 6.42.010
Limitation on storage of automobiles..... 6.42.030
Records required 6.42.020
Violations 6.42.040
Bicycles
Defined 12.04.025
Regulations ..... 12.60.010 et seq.
See: BICYCLES
Booting services ..... 6.81.005 et seq.
See: BOOTING SERVICES
Bus
Defined 12.04.030
Business district
Defined 12.04.035
Cancellation of driver's license
Defined 12.04.040
Combat auto theft (CAT) program ..... 2.44.180 et seq.
See: POLICE DEPARTMENT
Controlled-access highway
Defined 12.04.045
Crosswalk
Defined 12.04.050
Cruising on public streets
Cruising prohibited 12.69.030

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Definitions 12.69.020
Enforcement 12.69.050
Exceptions 12.69.060
Notice 12.69.040
Penalties 12.69.070
Purpose 12.69.010
Severability 12.69.080
Curb
Defined 12.04.055
Dealer
Defined 12.04.060
Definitions
Alley 12.04.010
Arterial street 12.04.015
Authorized emergency vehicle 12.04.020
Bicycle 12.04.025
Bus 12.04.030
Business district 12.04.035
Cancellation of driver's license 12.04.040
Controlled-access highway 12.04.045
Crosswalk 12.04.050
Curb 12.04.055
Dealer 12.04.060
Definitions and interpretation of language 12.04.005
Divided highway 12.04.065
Driveaway-towaway operation 12.04.070
Driver 12.04.075
Driver's license 12.04.080
Essential parts 12.04.085
Established place of business 12.04.090
Explosives 12.04.095
Farm tractor 12.04.100
Flammable liquid 12.04.105
Freight curb loading zone .. 12.04.110
Gross weight 12.04.115
Highway 12.04.120
House trailer 12.04.125
Identifying number 12.04.130
Implement of husbandry ... 12.04.135
In-line skates 12.04.137
Intersection 12.04.140
Laned roadway 12.04.145
License or license to operate a motor vehicle 12.04.150
Lienholder 12.04.155
Mail 12.04.160
Manufacturer 12.04.165
Metal tire 12.04.170
Motor home 12.04.185
Motor vehicle 12.04.190
Motorcycle 12.04.175
Motorized scooter 12.04.193
Motor-driven cycle 12.04.180
Non-motorized scooter 12.04.194
Nonresident 12.04.195
Nonresident's operating privilege 12.04.200
Official time standard 12.04.205
Official traffic-control devices 12.04.210
Owner 12.04.215
Park or parking 12.04.220
Parking lot 12.04.225
Parking meter 12.04.230
Parking meter space 12.04.235
Passenger car 12.04.240
Passenger curb loading zone 12.04.245
Pedestrian 12.04.250
Person 12.04.255
Pneumatic tire 12.04.260
Pole trailer 12.04.265
Police officer 12.04.270
Private road or driveway ... 12.04.275
Railroad sign or signal 12.04.280
Railroad train 12.04.285
Reconstructed vehicle 12.04.290
Registration 12.04.295
Residence district 12.04.300
Revocation of driver's license 12.04.305
Right-of-way 12.04.310
Roadway 12.04.315
Roller skates 12.04.317
Safety zone 12.04.320
School bus 12.04.325
Semi-trailer 12.04.330
Sidewalk 12.04.335
Solid rubber tire 12.04.340
Special mobile equipment . 12.04.350
Specially constructed vehicle 12.04.345
Stand or standing 12.04.355
State 12.04.360
Stop 12.04.365

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Stop or stopping 12.04.370
Street 12.04.375
Suspension of driver's license 12.04.380
Through highway 12.04.385
Tractor 12.04.395
Traffic 12.04.400
Traffic-control signal 12.04.405
Trailer 12.04.410
Truck 12.04.415
Truck tractor 12.04.425
Truck-camper 12.04.420
Urban district 12.04.430
Vehicle 12.04.435
Department of general services
Use of metropolitan government vehicles .. 2.32.060
Divided highway
Defined 12.04.065
Driveaway-towaway operation
Defined 12.04.070
Driver
Defined 12.04.075
Driver's license
Defined 12.04.080
Equipment
Blue lights
Unauthorized use prohibited 12.32.080
Brake equipment 12.32.020
Horns and warning devices 12.32.010
Lighted lamps and illuminating devices required when 12.32.030
Mud flaps for heavy vehicles 12.32.060
Projecting loads
Lamps or flags required when 12.32.040
Red lights
Unauthorized use prohibited 12.32.070
Warning citation procedures
Nullification procedures. 12.32.090
Essential parts
Defined 12.04.085
Established place of business
Defined 12.04.090

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Explosives
Defined 12.04.095
Farm tractor
Defined 12.04.100
Ferries ..... 12.80.010 et seq.
See: FERRIES
Financial policies
Equipment or automobile leases 5.04.020
Fire department
Access to vehicles 2.28.260
Use of the department of public works' hazardous materials response vehicles for fire prevention, firefighting and the containment of hazardous materials... 2.28.111
Flammable liquid
Defined 12.04.105
Freight curb loading zone
Defined 12.04.110
General regulations, administration and enforcement
Abandoned vehicles 12.08.210
Animal riding and persons propelling pushcarts .. 12.08.130
Appeals 12.08.220
Applicability of provisions
To highways 12.08.020
To other areas 12.08.030
Authorized emergency vehicles 12.08.140
Citations for violations 12.08.180
Compliance by public employees required... 12.08.070
Compliance with Title 12 provisions 12.08.010
Defensive driving course required for persons operating certain government vehicles .. 12.08.120
Driver's or chauffeur's license
Required 12.08.100
Unlawful uses designated..... 12.08.110

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Emergency and experimental regulations authorized when 12.08.040
Impoundment of vehicles .. 12.08.150
Obedience to enforcement officers 12.08.060
Powers supplemental 12.08.230
Service of process for actions involving nonpayment of certain traffic tickets or citations 12.08.200
State offenses declared municipal misdemeanors 12.08.160
State registration plates
Required
Mounting and maintenance 12.08.080
Unlawful use 12.08.090
Traffic direction and enforcement authority of police and fire department officials... 12.08.050
Violation of regulations adopted by traffic and parking commission
Penalty 12.08.170
Warrants for violations when person cited signs waiver of warrant on citation.... 12.08.190
Gross weight
Defined 12.04.115
Highway
Defined 12.04.120
Horse-drawn carriages ..... 12.54.010 et seq.
See: HORSE-DRAWN CARRIAGES
House trailer
Defined 12.04.125
Identifying number
Defined 12.04.130
Implement of husbandry
Defined 12.04.135
In-line skates
Defined 12.04.137
Intersection
Defined 12.04.140

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Laned roadway
Defined 12.04.145
Large vehicle parking in the public right-of-way prohibited 12.40.180
License or license to operate a motor vehicle
Defined 12.04.150
Lienholder
Defined 12.04.155
Littering..... 10.24.010 et seq.
See: LITTERING
Loading and unloading..... 12.48.010 et seq.
See: LOADING AND UNLOADING
Low speed vehicles
Certificate of public convenience and necessity
Annual renewal 6.73.060
Application
Information and fees required 6.73.040
Enforcement by police officers..... 6.73.100
Findings
Issuance of certificate or additional permits 6.73.030
Insurance required 6.73.070
Issuance and denial
Fees 6.73.050
Request for additional permits..... 6.73.080
Required and term 6.73.020
Suspension and revocation..... 6.73.090
Civil penalty schedule
Violations; penalties..... 6.73.510
Definitions..... 6.73.010
Driver permit
Alcohol in a LSV 6.73.220
Application
Approval or disapproval 6.73.140
Information and fees required 6.73.120
Compliance with provisions..... 6.73.260
Criminal background investigation 6.73.130

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
- Driver
  - Appearance 6.73.210
  - Conduct of 6.73.200
- Expiration
  - Issuance and replacement fee .. 6.73.170
- Hospitality training program; participation required 6.73.175
- Issuance
  - Contents 6.73.150
- New application after denial 6.73.160
- Passenger as controller .. 6.73.250
- Permit required
  - Violations and term ... 6.73.110
- Return of passengers' property 6.73.240
- Revocation of a valid driver's license 6.73.190
- Suspension, revocation, and appeal 6.73.180

Equipment and operation
- Accidents 6.73.400
- Contract rates 6.73.340
- Duty to render service
  - Business requirements 6.73.370
- Equipment 6.73.360
- Inspection and maintenance of vehicles
  - Compliance required . 6.73.320
- Inspectors
  - Reporting or citing violations 6.73.490
- LSV passenger's bill of rights 6.73.500
- Operating area 6.73.380
- Passengers
  - Disposition of disorderly 6.73.440
  - Receiving and discharging by drivers 6.73.410
  - Refusal to carry orderly 6.73.430
  - Refusal to pay legal fare 6.73.420
- Rate schedule and card for LSVs 6.73.330

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
- Records and reports 6.73.390
- Soliciting
  - Business 6.73.460
  - Passengers 6.73.450
  - Prohibited manner of . 6.73.470
- Taxicab stands
  - Prohibited vehicles ... 6.73.480
- Vehicle
  - Advertising on 6.73.350
  - Ownership and control of 6.73.280
  - Permit required 6.73.270
  - Requirements 6.73.300
- Vehicle to display
  - Company name, color scheme insignia and numbering Restrictions 6.73.310
  - Identification 6.73.290

Mail
- Defined 12.04.160

Manufacturer
- Defined 12.04.165

Metal tire
- Defined 12.04.170

Metropolitan courts
- Parole of traffic violators
  - Failure to observe conditions deemed misdemeanor 2.56.020
- Provisions re ..... 2.56.510 et seq.
  - See: COURTS
- Traffic violations bureau ... 2.56.200 et seq.
  - See: COURTS

Metropolitan Nashville Airport Authority ..... 2.60.280 et seq.
- See: AVIATION AND AIRCRAFT

Metropolitan transportation licensing commission ... 2.100.010 et seq.
- See: TRANSPORTATION

Miscellaneous driving rules
- Attempting to elude police officers 12.68.200
- Backing of vehicles
  - Restrictions 12.68.080
- Boarding or alighting from moving vehicles 12.68.160
- Careless driving 12.68.170

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Causing unnecessary traffic congestion
Regulations in shopping center parking lots . 12.68.060
Coasters, roller skates and other toy vehicles..... 12.68.090
Detour signs
Driver obedience required..... 12.68.120
Drivers in processions 12.68.010
Driving on sidewalks 12.68.130
Driving over fire hose 12.68.050
Driving through funeral processions..... 12.68.030
Driving under the influence of intoxicating liquor or drugs 12.68.190
Following fire apparatus... 12.68.040
Funeral procession identification 12.68.020
Golf cart requirements..... 12.68.100
Opening doors into traffic . 12.68.070
Putting glass, nails or other injurious materials on highway
Clearing accident wreckage..... 12.68.150
Reckless driving..... 12.68.180
Regulating the transportation of liquefied petroleum gas..... 12.68.220
Riding on portions of vehicle not intended for passengers 12.68.140
Towing of vehicles..... 12.68.110
Use of mobile telephones while operating a school bus or other vehicle transporting children..... 12.68.210
Motor home
Defined..... 12.04.185
Motor vehicle
Defined..... 12.04.190
Motorcycle
Defined..... 12.04.175
Traffic regulations ..... 12.64.010 et seq.
See: MOTORCYCLES

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Motor-driven cycle
Defined..... 12.04.180
Motorized scooter
Defined..... 12.04.193
Noise and amplified sound
Excessive noise
Motor vehicle noise 9.20.020
Non-motorized scooter
Defined..... 12.04.194
Nonresident
Defined..... 12.04.195
Nonresident's operating privilege
Defined..... 12.04.200
Official time standard
Defined..... 12.04.205
Official traffic-control devices
Defined..... 12.04.210
One-way streets and alleys
Changes of traffic direction at certain locations or during certain hours
Left-turn lanes 12.28.030
Schedule IV 12.28.010
Signs to regulate direction of traffic 12.28.020
Owner
Defined..... 12.04.215
Parades..... 12.56.010 et seq.
See: PARADES
Parking
Alley parking..... 12.40.060
Application of chapter provisions 12.40.010
Blocking driveways or garages 12.40.130
Chapter provisions not exclusive 12.40.230
Defined..... 12.04.220
Handicapped parking spaces 12.40.090
Illegal parking
Owner prima facie responsibility..... 12.40.210
Method of parking..... 12.40.030
One-way roadways
Standing and parking restrictions 12.40.050
Parking for sale or repair purposes unlawful 12.40.150

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Parking meter zones ..... 12.44.010 et seq.
See within this title. Parking Meter Zones
Parking near schools..... 12.40.100
Parking not to obstruct traffic..... 12.40.080
Parking on narrow streets.. 12.40.070
Parking on parade route.... 12.56.140
Parking with left side of vehicle to curb..... 12.40.120
Permit parking programs .. 12.42.010 et seq.
See within this title. Permit Parking Programs
Personal delivery devices
Defined..... 12.61.010
Large vehicle parking in the public right-of-way prohibited 12.40.180
Prohibited 12.61.020
Removal of vehicles authorized when 12.40.220
Residential on-street handicapped parking space 12.40.095
Sign requirements and use of curb/street painting 12.40.020
Stopping, standing or parking
Prohibited locations..... 12.40.040
Stopping, standing or parking near hazardous or congested places ... 12.40.110
Trucks
Parking restrictions and maneuvering for parking..... 12.40.170
Unattended motor vehicles
Required procedures 12.40.200
Use of streets by parking lot attendants prohibited 12.40.140
Parking lot
Defined..... 12.04.225
Parking meter
Defined..... 12.04.230
Parking meter space
Defined..... 12.04.235

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Parking meter zones
Annually-paid metered parking for car-sharing organization vehicles . 12.44.085
Disabled driver parking—notice..... 12.44.070
Establishment authority.... 12.44.010
Free metered parking for clean technology vehicles..... 12.44.075
Meter design and installation specifications 12.44.020
Method of parking in metered spaces 12.44.030
Payment for parking
Time limits for use 12.44.040
Tampering with or destroying meters unlawful..... 12.44.060
Use of contractors 12.44.015
Use of slugs or substitute coins unlawful..... 12.44.050
Parks, recreational facilities and cemeteries
Vehicles and traffic ..... 13.24.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Passenger car
Defined..... 12.04.240
Passenger curb loading zone
Defined..... 12.04.245
Pedestrians
Defined..... 12.04.250
Vehicle and traffic regulations..... 12.52.010 et seq.
See: PEDESTRIANS
Permit parking programs
Downtown area residential permit parking program
Definitions 12.42.120
Downtown area residential permit parking program
Downtown area permit parking authorized . 12.42.130

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Downtown area residential parking permit 12.42.150
Fee 12.42.160
Implementation 12.42.140
Misrepresentation by applicant for permit
Illegal use of permits . 12.42.180
Penalties 12.42.190
Visitor's permit 12.42.170
Residential permit parking program
Definitions 12.42.010
Exemption from residential permit parking area 12.42.070
Implementation 12.42.050
Misrepresentation by applicant for permit
Illegal use of permits . 12.42.100
Penalties 12.42.110
Procedures to be used in designation or withdrawing designations of residential permit parking areas 12.42.040
Residential parking permit 12.42.060
Fee 12.42.080
Visitor's permit 12.42.090
Residential permit parking areas
Authorized 12.42.020
Eligibility requirements 12.42.030
University area residential lots eligible for individual residential permit parking 12.42.115
Person
Defined 12.04.255
Pneumatic tire
Defined 12.04.260
Pole trailer
Defined 12.04.265
Police officer
Defined 12.04.270
Private road or driveway
Defined 12.04.275
Railroad sign or signal
Defined 12.04.280
Railroad train
Defined 12.04.285
Railroads and grade crossings 12.76.010 et seq.
See: RAILROADS AND TRAINS
Reconstructed vehicle
Defined 12.04.290
Registration
Defined 12.04.295
Rendering plants 6.60.080
Residence district
Defined 12.04.300
Revocation of driver's license
Defined 12.04.305
Right-of-way
Defined 12.04.310
Roadway
Defined 12.04.315
Roller skates
Defined 12.04.317
Rules of the road
Controlled-access roadways
Entrance and exit restrictions 12.16.080
Use restrictions and traffic-control devices 12.16.090
Cutting through private property prohibited ... 12.16.210
Driving on divided highways 12.16.070
Following too closely 12.16.200
Hand and arm signals 12.16.130
Left side of roadway, driving on prohibited
Exceptions 12.16.060
No-passing zones 12.16.100
Overtaking a vehicle on the left 12.16.020
Overtaking on the left 12.16.050
Passing on right permitted when 12.16.040
Passing vehicles proceeding in opposite directions
Narrow roadways 12.16.030

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Position of vehicles when turning at intersections 12.16.140
Right side of roadway, driving on required
Exceptions 12.16.010
Safety zones prohibited, driving through 12.16.230
School buses
Overtaking and passing restrictions 12.16.180
Starting parked vehicles ... 12.16.190
Streets under construction prohibited, driving on. 12.16.220
Turn signal procedures..... 12.16.120
Turning movements and required turning signals 12.16.110
Turning to go in opposite direction 12.16.170
Yield right-of-way
Vehicles at intersections. 12.16.150
Vehicles turning to the left 12.16.160
Safety zone
Defined..... 12.04.320
School bus
Defined..... 12.04.325
Scooters, roller skates and in-line skates..... 12.58.010 et seq.
See: SCOOTERS, ROLLER SKATES AND IN-LINE SKATES
Semi-trailer
Defined..... 12.04.330
Shared urban mobility devices..... 12.62.010 et seq.
See: SHARED URBAN MOBILITY DEVICES
Sidewalk
Defined..... 12.04.335
Size, weight and load restrictions
Application of chapter provisions
Exceptions 12.36.010
Gross weight per axle of vehicles and loads 12.36.070

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Heavily traveled streets
Nonmotorized and other vehicle restrictions . 12.36.100
Height and length of vehicles and loads 12.36.040
Liability for damage to highways or structures 12.36.120
Load restrictions..... 12.36.110
Loads projecting from passenger vehicles 12.36.030
Permits for excess size and weight 12.36.080
Restricted use of highways authorized when 12.36.090
Special load limits
Pole trailers and structural materials. 12.36.050
Spilling or dropping of loads
Preventive measures required 12.36.060
Width of vehicles 12.36.020
Solid rubber tire
Defined..... 12.04.340
Special mobile equipment
Defined..... 12.04.350
Specially constructed vehicle
Defined..... 12.04.345
Speed restrictions
Alleys 12.20.060
Basic rule
Reasonable speed under the conditions 12.20.010
Construction and demolition site restrictions..... 12.20.080
Maximum speed limits 12.20.020
Minimum speed regulation 12.20.050
School zone restrictions ... 12.20.070
Special speed zones..... 12.20.030
Speed limitations for certain vehicles and conditions 12.20.040
Stand or standing
Defined..... 12.04.355
State
Defined..... 12.04.360
Stop
Defined..... 12.04.365

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
Stop or stopping
Defined 12.04.370
Street
Defined 12.04.375
Suspension of driver's license
Defined 12.04.380
Taxicabs ..... 6.72.010 et seq.
See: TAXICABS
Through highway
Defined 12.04.385
Through streets and stop intersections
Obstructing intersections
Entry restrictions 12.24.060
Other intersections where stopping or yielding is required 12.24.030
Procedures for vehicles entering stop or yield intersections 12.24.040
Sign requirements 12.24.020
Through streets
Schedule V 12.24.010
Vehicles emerging from alley, driveway or building 12.24.050
Tow-in lots
Accounting for funds and property received 12.72.070
Charges for towing and storage 12.72.040
Establishment and use
Police department jurisdiction 12.72.010
Payment of monthly rental. 12.72.060
Procedures for hauling vehicles to the lot
Reimbursement of costs. 12.72.030
Property lease authorization 12.72.050
Rules and regulations for operation and collection of storage charges 12.72.020
Stolen motor vehicles
Storage, notice and removal requirements 12.72.080
Tractor
Defined 12.04.395
Traffic
Defined 12.04.400
Traffic-control devices
Continuation of existing traffic-control devices 12.12.080
Crosswalks and safety zones 12.12.130
Devices required for enforcement of provisions 12.12.060
Flashing control signals.... 12.12.100
Installation
Chief traffic engineer authority 12.12.010
Interfering with or removing official traffic-control devices 12.12.180
Lane direction control signals 12.12.120
Manual and specifications for traffic-control devices 12.12.040
Obedience to traffic-control devices 12.12.050
Pedestrian control signals.. 12.12.140
Placement of devices
Presumption of legality.. 12.12.070
Play streets
Driving limitations 12.12.160
Establishment authority . 12.12.150
Restricted turn signs
Placement authority and driver obedience ... 12.12.030
Signal legend
Colors and other indications 12.12.090
Traffic calming projects ... 12.12.190
Traffic lanes 12.12.110
Turning markers
Placement authority and driver obedience ... 12.12.020
Unauthorized signs, signals or markings ... 12.12.170
Traffic-control signal
Defined 12.04.405
Trailer
Defined 12.04.410
Truck
Defined 12.04.415
Truck tractor
Defined 12.04.425

TRAFFIC AND MOTOR VEHICLES (Cont'd.)
- Truck-camper
  - Defined 12.04.420
- Urban district
  - Defined 12.04.430
- Urban services district regulations
  - Pawnbrokers, secondhand dealers and junk dealers
    - Automobile dealers 6.100.050
- Valet services ..... 12.41.010 et seq.
  - See: VALET SERVICES
- Vehicle
  - Defined 12.04.435
- Vehicle taxes ..... 5.32.010 et seq.
  - See: REVENUE AND FINANCE
- Violations
  - Fine schedules
    - Violation Penalties 12.84.010, 12.84.020, 12.84.030
- Waste management
  - Disposal facilities, fees and charges
    - Vehicle requirements—Dumping times 10.20.350
  - Information required on
    - Dump trucks—Violation and penalty 10.20.070
    - Vehicles transporting used tires—Violation and penalty 10.20.075
- Weights and measures ..... 6.76.010 et seq.
  - See: WEIGHTS AND MEASURES
- Wrecker and towing services . 6.80.010 et seq.
  - See: WRECKER AND TOWING SERVICES

TRAILER
- Defined 12.04.410

TRAILER COURTS
- Additions to trailers
  - Parking restrictions 10.40.060
- Communicable or contagious diseases 10.40.150
- Definitions 10.40.010
- Electrical outlets and power lines 10.40.100
- Fire prevention 10.40.120

TRAILER COURTS (Cont'd.)
- Insect and rodent control measures 10.40.140
- Inspection authority
  - Right of entry 10.40.030
- Liquefied petroleum gas 10.40.110
- Location and planning 10.40.040
- Permits 10.40.020
- Plumbing 10.40.090
- Refuse storage, collection and disposal 10.40.130
- Register of coaches and occupants 10.40.160
- Service buildings 10.40.050
- Sewage disposal 10.40.080
- Water supply 10.40.070

TRAINING
- Burglar and fire alarm systems
  - Employee training 10.60.050
- Defensive driving course required for persons operating certain government vehicles 12.08.120
- Department of codes administration
  - In-service training fund 2.20.070
- Fair employment and housing practices
  - Recruitment for training programs, discrimination prohibited 11.20.060
- Fire department
  - Course of instruction 2.28.240
- Horse-drawn carriages
  - Driver's permit
    - Hospitality training program; participation required 12.54.175
- Pedicabs and pedal carriages
  - Driver permit
    - Hospitality training program; participation required 6.75.185
- Police department
  - In-service training program 2.44.050

TRAINING (Cont'd.)
Procurement of construction contracts
Utilization of apprentice, training, and certification programs
Employer information... 4.20.105
Traffic and motor vehicles
Low speed vehicles
Driver permit
Hospitality training program; participation required 6.73.175
Vehicles for hire
Other passenger vehicles for hire
Drivers' permits
Hospitality training program; participation required 6.74.165

TRANSPORTATION
Metropolitan transportation licensing commission
Created
Membership..... 2.100.010
Director 2.100.055
Duties of chief of police and chief traffic engineer 2.100.040
Duties of the police department 2.100.045
Jurisdiction
Licensing and rulemaking authority 2.100.030
Laws not repealed 2.100.060
Secretary 2.100.020
Transfer of budgetary appropriation 2.100.065
Transportation inspectors .. 2.100.050
Streets, sidewalks and other public ways
Nashville Department of Transportation participation agreements
Definitions 13.21.010
Participation agreements with developers 13.21.020

TRANSPORTATION (Cont'd.)
Waste management
Information required on
Vehicles transporting used tires—Violation and penalty 10.20.075

TRASH. See: GARBAGE AND TRASH

TREASURER
Department of finance..... 2.24.010 et seq.
See: FINANCE

TREE REPLACEMENT AND PROTECTION ON CERTAIN METRO PROPERTIES
Covered trees identified 2.226.030
Enhanced tree requirements .. 2.226.080
Governance 2.226.040
Notification 2.226.070
Panel review and replacement standards..... 2.226.060
Purpose 2.226.010
Removal of or damage to covered trees 2.226.100
Responsible agencies identified..... 2.226.020
Tracking and data collection . 2.226.110
Tree review panel created 2.226.050
Violations 2.226.090

TREES AND SHRUBBERY
Fiber optic communications services, franchises for
Protection of trees 6.26.160
Landscaping, buffering and tree requirements..... 17.24.010 et seq.
See: ZONING (Title 17)
Tree protection and replacement procedures . 17.40.440 et seq.
See: ZONING (Title 17)
Urban forester..... 2.104.010 et seq.
See: FORESTRY
Urban services district regulations
Injuring trees prohibited ... 13.32.210

TRESPASSING
Trespassing on enclosed property
Defacing enclosure 11.24.050

TRUCK
Defined 12.04.415

TRUCK (Cont'd.)
Waste management
Information required on
Dump trucks—Violation and penalty..... 10.20.070
TRUCK TRACTOR
Defined 12.04.425
TRUCK-CAMPER
Defined 12.04.420
TWO-STORY RESIDENTIAL OVERLAY DISTRICT
Zoning regulations ..... 17.36.630 et seq.
See: ZONING (Title 17)

— U —

URBAN DESIGN OVERLAY DISTRICT
Zoning regulations ..... 17.36.270 et seq.
See: ZONING (Title 17)
URBAN JAILS. See: PRISONS AND PRISONERS
URBAN RENEWAL
Metropolitan council
Advertisement and notice concerning rezone hearings or urban renewal projects 2.04.040
URBAN SERVICES DISTRICT
Animal control regulations... 8.20.010 et seq.
See: ANIMALS AND FOWL
Business licenses and regulations
Auctions and auctioneers.. 6.84.010 et seq.
See: AUCTIONS AND AUCTIONEERS
Auctions sales of automobiles or jewelry ..... 6.88.010 et seq.
See: AUCTIONS AND AUCTIONEERS
Bankruptcy, close-out and similar sales ..... 6.92.010 et seq.
See: SALES
Pawnbrokers, secondhand dealers and junk dealers..... 6.100.010 et seq.
See: PAWNBROKERS AND SECONDHAND DEALERS
Defined 12.04.430
URBAN SERVICES DISTRICT (Cont'd.)
Fire protection and firefighting equipment.. 10.80.010 et seq.
See: FIRE PREVENTION AND PROTECTION
Hospitals and physicians..... 10.72.010 et seq.
See: HOSPITALS AND PHYSICIANS
House numbering systems.... 13.28.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Parking lots, decks and garages..... 13.40.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Privilege taxes ..... 5.36.010 et seq.
See: REVENUE AND FINANCE
Street and sidewalk regulations ..... 13.32.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Tax on utility poles in streets. 5.40.010 et seq.
See: REVENUE AND FINANCE
Waste management—Waste collection and disposal.. 10.20.200 et seq.
See: SOLID WASTE
Weights and measures..... 6.76.010 et seq.
See: WEIGHTS AND MEASURES
Wrecker and towing services. 6.80.010 et seq.
See: WRECKER AND TOWING SERVICES
URBAN ZONING OVERLAY DISTRICT
Zoning regulations ..... 17.36.430 et seq.
See: ZONING (Title 17)
UTILITIES
Department of water and sewer services..... 2.52.010 et seq.
See: WATER, SEWERS AND OTHER PUBLIC SERVICES

UTILITIES (Cont'd.)
Excavations and obstructions
Utility manholes
Testing for flammable or toxic gases required 13.20.070
Two work people required at all times 13.20.080
Fiber optic communications services, franchises for
Adjustment of utility facilities 6.26.080
Procurement code
Specific procedures..... 4.12.080
Urban services district
Tax on utility poles in streets ..... 5.40.010 et seq.
See: REVENUE AND FINANCE

— V —

VACANCIES
Auditorium commission..... 2.116.020
Charter revision commission . 2.120.030
Metropolitan human relations commission 2.132.030
Public records commission... 2.140.030
Tourism and convention commission 2.148.020
VALET SERVICES
Conditions of valet parking permits..... 12.41.040
Definitions 12.41.010
Designation of space for service 12.41.090
Employees—Background checks..... 12.41.070
Enforcement 12.41.100
Hearing before suspension, revocation or probation and after refusal to renew license or permit . 12.41.060
Insurance requirements..... 12.41.050
License required—issuance—conditions.... 12.41.020
Rules and regulations 12.41.110
Valet location permit required..... 12.41.030
Valet parking operations and fees 12.41.080
VEGETATION
Board of property standards and appeals
Control of excessive vegetation 2.88.090
Control of excessive vegetation
Appeals to the board of property standards and appeals 10.28.070
Application of this chapter. 10.28.040
Board of property standards and appeals. 10.28.020
Collection of costs..... 10.28.080
Department of codes administration 10.28.030
Excessive growth and accumulation prohibited 10.28.010
Failure to comply
Remedy by the department of codes administration..... 10.28.060
Notice of violation..... 10.28.050
Right to appeal 10.28.090
Parks, recreational facilities and cemeteries
Plant life..... 13.24.480
Urban services district regulations
Street and sidewalk regulations
Burning leaves or trash prohibited..... 13.32.150
VEHICLES. See: TRAFFIC AND MOTOR VEHICLES
VEHICLES FOR HIRE
Entertainment transportation . 6.77.010 et seq.
See: ENTERTAINMENT TRANSPORTATION
Horse-drawn carriages ..... 12.54.010 et seq.
See: HORSE-DRAWN CARRIAGES
Metropolitan Nashville Airport Authority..... 2.60.310
Other passenger vehicles for hire
Certification of public convenience and necessity
Annual renewal 6.74.045

VEHICLES FOR HIRE
(Cont'd.)
Application—
Information and fees required 6.74.030
Classification of vehicles and services 6.74.025
Findings—issuance of certificate—Fees required 6.74.040
Liability insurance required 6.74.050
MTLC notification—Quarterly reports required 6.74.070
Request for additional permits 6.74.060
Request for special temporary service .. 6.74.055
Required 6.74.020
Suspension and revocation 6.74.090
Transfers—Fee 6.74.080
Definitions 6.74.010
Drivers' permits
Application
Approval or disapproval 6.74.130
Information and fees required 6.74.110
Compliance with provisions 6.74.190
Criminal background investigation 6.74.120
Display of permit 6.74.170
Expiration—Issuance and replacement fee 6.74.160
Hospitality training program; participation required 6.74.165
Issuance contents 6.74.140
New application after denial 6.74.150
Required 6.74.100
Revocation of Tennessee Driver's License 6.74.185
Suspension and revocation 6.74.180

VEHICLES FOR HIRE
(Cont'd.)
Equipment
Inspection and maintenance of vehicles—Compliance required 6.74.220
Inspection compliance decal required—Maintenance equipment 6.74.240
Ownership of vehicles ... 6.74.205
Limits on stretch limousines 6.74.225
Tests and inspections of vehicles 6.74.250
Vehicle age and mileage limit 6.74.230
Vehicle permit required . 6.74.200
Vehicle to display identification 6.74.210
Operations
Accidents 6.74.340
Daily manifests 6.74.310
Disposition of disorderly passengers 6.74.390
Driver appearance 6.74.420
MTLC staff—Reporting or citing violations . 6.74.440
Operating records and reports 6.74.330
Passengers
Maximum number 6.74.350
Receiving and discharging by drivers 6.74.360
Pre-arrangement documented—Required procedures 6.74.320
Prohibited acts by driver 6.74.430
Prohibited items 6.74.410
Prohibition against compensation for right to pick-up passengers 6.74.380
Required items 6.74.400
Vehicle safety devices ... 6.74.425
Purpose and intent of chapter provisions 6.74.015

VEHICLES FOR HIRE (Cont'd.)
Violations—Civil penalty schedules
Violation—Penalties 6.74.500
Taxicabs ..... 6.72.010 et seq.
See: TAXICABS
VERMIN
Rodents, insects and other pests ..... 10.32.010 et seq.
See: PESTS AND PEST CONTROL
VETERANS
Assistance to small, disadvantaged, and service-disabled veteran owned businesses ..... 4.44.010 et seq.
See: PROCUREMENT CODE
VICIOUS DOGS. See: ANIMALS AND FOWL
VITAL STATISTICS
Board of health
Authority 10.04.050
Certificate of birth
Filing required..... 10.04.020
Certificate of death or stillbirth
Filing required..... 10.04.030
Certificates deemed in compliance when..... 10.04.040
Certified copies of statistics
Fees
Disposition of funds..... 10.04.070
Provided when..... 10.04.060
Chapter provisions supplementary to state law..... 10.04.080
Definitions 10.04.010
VOTES AND VOTING. See: ELECTIONS

— W —

WAREHOUSES
Dry warehouses for storage of food ..... 10.08.010 et seq.
See: FOOD AND FOOD STORAGE
WATER, SEWERS AND OTHER PUBLIC SERVICES
Act or the Act
Defined..... 15.04.030
WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Administrative plans
Master water plan
Adopted
Implementation
Revisions 15.08.010
Wastewater facilities plan
Adopted
Implemented
Revisions 15.08.020
Air conditioning and refrigeration
Application for permit..... 15.56.030
Effect on other building regulations..... 15.56.010
Installation
Permit required
Exceptions..... 15.56.020
Regulations 15.56.040
Use of public waters restricted
Conservation regulations 15.56.050
Violation
Discontinuance of water. 15.56.060
Approval authority
Defined..... 15.04.040
Authority
Defined..... 15.04.050
Authorized representative of industrial user
Defined..... 15.04.060
Building sewer
Defined..... 15.04.070
Categorical industrial user
Defined..... 15.04.085
Categorical pretreatment standards
Defined..... 15.04.080
Community sewer
Defined..... 15.04.090
Compatible pollutant
Defined..... 15.04.100
Control authority
Defined..... 15.04.110
Definitions
Abbreviations..... 15.04.020
Act or the Act..... 15.04.030
Antifreeze 15.04.035
Approval authority..... 15.04.040
Authority 15.04.050

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Authorized representative of industrial user..... 15.04.060
Best management practices or BMPs..... 15.04.065
Building sewer..... 15.04.070
Categorical industrial user. 15.04.085
Categorical pretreatment standards 15.04.080
Community sewer 15.04.090
Compatible pollutant 15.04.100
Control authority 15.04.110
Direct discharge 15.04.120
Director 15.04.130
Domestic sewage 15.04.140
Environmental Protection Agency 15.04.150
Existing source 15.04.155
Food service establishment 15.04.158
Grab sample 15.04.160
Holding tank waste 15.04.170
In general..... 15.04.010
Incompatible pollutant..... 15.04.180
Indirect discharge..... 15.04.190
Industrial user 15.04.200
Instantaneous limit 15.04.215
Interference..... 15.04.210
Local limit..... 15.04.217
Mass emission rate 15.04.220
Maximum concentration... 15.04.230
Medical waste 15.04.235
Metro..... 15.04.240
Monthly average..... 15.04.245
Multi-dwelling unit..... 15.04.248
Municipal user..... 15.04.249
National pollution discharge elimination system permit..... 15.04.250
National pretreatment standards 15.04.260
New source..... 15.04.270
Non-contact cooling water. 15.04.275
Pass through..... 15.04.278
Person 15.04.280
pH..... 15.04.285
Pharmaceuticals 15.04.286
Pollutant..... 15.04.288
Pollution..... 15.04.290
Premises..... 15.04.300
Pretreatment..... 15.04.310
Pretreatment requirements. 15.04.320

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Pretreatment standards or standards 15.04.325
Publicly owned treatment works..... 15.04.330
Reclaimed water..... 15.04.340
Septic tank waste 15.04.345
Slug load or slug discharge 15.04.350
Standard industrial classification..... 15.04.355
Stormwater 15.04.360
Toxic pollutant 15.04.370
Treatment works..... 15.04.380
Twenty-four-hour, flow proportional composite sample..... 15.04.385
Unpolluted water 15.04.390
User 15.04.400
Waste..... 15.04.410
Wastewater 15.04.420
Wastewater constituents and characteristics 15.04.430
Waters of the State of Tennessee..... 15.04.440
Department of water and sewer services
Assistant directors
Qualifications 2.52.020
Billings and collection manager 2.52.030
Divisions and sections established..... 2.52.010
Employment of engineering consultants 2.52.040
Direct discharge
Defined..... 15.04.120
Director
Defined..... 15.04.130
Domestic sewage
Defined..... 15.04.140
Environmental Protection Agency
Defined..... 15.04.150
Exhausting steam into public sewer..... 11.24.100
Existing source
Defined..... 15.04.155
Fees, in-lieu contributions and other assessments, estimates or payments... 15.02.010

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
- Food service establishment
  - Defined 15.04.158
- Grab sample
  - Defined 15.04.160
- Holding tank waste
  - Defined 15.04.170
- Incompatible pollutant
  - Defined 15.04.180
- Indirect discharge
  - Defined 15.04.190
- Industrial user
  - Defined 15.04.200
- Industrial waste discharges
  - Administration and enforcement
    - Adjudicatory hearing procedures 15.60.360
    - Applicability of state and federal regulations 15.60.430
    - Assessment of damage to user 15.60.420
    - Director
      - Authority and responsibilities .. 15.60.330
    - Emergency termination of service 15.60.440
    - Enforcement response manual 15.60.390
    - Injunctive relief 15.60.410
    - Monitoring and inspections 15.60.340
    - Punitive action
      - Confirmation of authority required
      - Exceptions 15.60.450
    - Right of entry 15.60.465
    - Show-cause hearing before Metro wastewater hearing authority 15.60.400
    - Significant noncompliance 15.60.385
    - Violation
      - Notice 15.60.380
      - Penalty 15.60.460
      - Public nuisance 15.60.370
    - Wastewater hearing authority 15.60.350

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
- Charges
  - Grease collection device Inspection charge 15.60.470
  - Plan and permit review Schedule of charges .. 15.60.480
- Discharge permits
  - Applicability of article .. 15.60.200
  - Application
    - Recommendation of special conditions 15.60.240
    - Report requirements .. 15.60.220
    - Requirements 15.60.210
  - Application signatories and certifications ... 15.60.258
  - Compliance schedule and reports Requirements 15.60.270
  - Incomplete applications
    - Notice to correct Denial 15.60.230
  - Individual wastewater discharge permits .. 15.60.252
  - Monitoring procedures .. 15.60.285
  - Notification requirements 15.60.275
  - Records of monitoring activities
    - Retention for four years
      - Subject to inspection 15.60.290
  - Records of monitoring activities required Contents 15.60.280
  - Regulation of waste from other jurisdictions 15.60.325
  - Repeat sampling and reporting/notice of violation 15.60.288
  - Revocation 15.60.320
  - Special permit conditions
    - Notice to applicant
      - Procedure to file objections 15.60.250
  - Term
    - Renewal
      - Modifications 15.60.300

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Transfer
Approval required 15.60.310
Unresolved disputes
Hearing..... 15.60.260
Wastewater discharge permits: General permits..... 15.60.255
Discharges to publicly owned treatment works
Additional pretreatment measures 15.60.045
Compliance with National Pretreatment Standards required . 15.60.050
Construction and maintenance of pretreatment facilities..... 15.60.040
Construction of pretreatment plants
Plans
Permits..... 15.60.030
Control of fats, oils and grease (FOG) discharges
Food service establishments... 15.60.125
Multi-dwelling units/apartments . 15.60.126
Dangerous discharge
Emergency procedures..... 15.60.190
Dilution..... 15.60.095
Direct discharge into manhole
Permit required..... 15.60.160
Hazardous waste discharge..... 15.60.082
Holding tank and hauled waste
Permit required..... 15.60.140
Liquid waste transport trucks
Permit requirements .. 15.60.130
Prevention of accidental and/or slug discharges..... 15.60.175
Prohibited pollutants 15.60.080
Prohibition of by-pass... 15.60.081
Purpose of article
Specifications subject to review..... 15.60.020
Radioactive waste prohibited
Exceptions..... 15.60.150
Temporary exceptions
Procedure..... 15.60.180
Treatment plant influent pollutants
Maximum concentrations ... 15.60.090
Unpolluted storm water prohibited
Exceptions..... 15.60.100
Unpolluted water prohibited
Exceptions..... 15.60.110
Waste from garbage grinders prohibited
Exceptions..... 15.60.120
Wastewater evaluation criteria 15.60.060
Wastewater pollutants
Maximum concentrations ... 15.60.070
Purpose of chapter..... 15.60.010
Interference
Defined..... 15.04.210
Mass emission rate
Defined..... 15.04.220
Mass gatherings
Sewage disposal and facilities 10.44.060
Maximum concentration
Defined..... 15.04.230
Medical waste
Defined..... 15.04.235
Metro
Defined..... 15.04.240
National pollution discharge elimination system permit
Defined..... 15.04.250
National pretreatment standards
Defined..... 15.04.260
New source
Defined..... 15.04.270

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Person
Defined 15.04.280
Pharmaceuticals
Defined 15.04.286
Plumbers, and plumbing and septic tank contractors .. 6.52.010 et seq.
See: PLUMBERS AND PLUMBING
Pollutant
Defined 15.04.288
Pollution
Defined 15.04.290
Premises
Defined 15.04.300
Pretreatment
Defined 15.04.310
Pretreatment requirements
Defined 15.04.320
Private facilities
Private fire hydrants
Applicability 15.68.010
Installation 15.68.020
Maintenance requirements 15.68.030
Separate violations
Penalty 15.68.040
Private sewage disposal systems
Discharge of waste into any body of water
Permit required 15.72.070
Health regulations
Adopted by reference . 15.72.010
Private connections permitted when..... 15.72.020
Privies permitted when .. 15.72.050
Runoff of contents unlawful when 15.72.060
Septic tanks
Testing by department of health 15.72.040
Temporary facilities for construction workers 15.72.030
Publicly owned treatment works
Defined 15.04.330
Reclaimed water
Defined 15.04.340

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Residential sanitary sewerage pumping systems
Agreement..... 15.34.080
Applicability 15.34.020
Definitions..... 15.34.010
Disconnection 15.34.060
Fees and charges..... 15.34.030
Installation 15.34.040
Ownership/maintenance responsibilities 15.34.050
Systems installed prior to adoption of the policy 15.34.070
Rodents, insects and other pests
Removing stagnant water .. 10.32.160
Sewer main tapping fees and charges
Applicability of chapter.... 15.36.010
Capacity charge 15.36.040
Connection fee 15.36.020
Exemptions..... 15.36.050
Extensions
Property of metropolitan government 15.36.120
Fees for multiple connections..... 15.36.060
Frontage defined..... 15.36.090
Intermediate connections
Financed by developer Reimbursement..... 15.36.100
Letters of availability 15.36.030
Oversized sewers 15.36.110
Participation with development..... 15.36.130
Payment
Installment plans 15.36.070
Unpaid fees
Lien on property 15.36.080
Sewer rates and charges
Classes of customers designated 15.44.010
Computation of net and gross billing 15.44.040
Monthly rates..... 15.44.020
Other water supplies
Approved meters required 15.44.030
Reports of sewerage division..... 15.44.070

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
- Vacant property readiness to serve charge..... 15.44.060
- Waters diverted from public sewerage system
  - Measurement
    - Reduction in charges . 15.44.050
- Sewer system use regulations
  - Compliance with plumbing code required..... 15.40.010
  - Discharge of garbage prohibited 15.40.080
  - Notice to connect
    - Accrual of charges upon expiration of notice 15.40.060
  - Regulation and enforcement
    - Authority of director 15.40.020
  - Service connections
    - Across private property . 15.40.120
    - Maintenance responsibility of owner and department..... 15.40.050
    - Required 15.40.040
  - Stormwater
    - Discharge to combined sewers or natural watercourses 15.40.110
    - Prevention of runoff to separate sewers..... 15.40.100
    - Runoff to sanitary sewers prohibited .. 15.40.090
  - Unserved parcels 15.40.070
- Sprinkler systems for fire protection
  - Application
    - Approval by board of underwriters..... 15.24.100
    - Drawings of fire protection system .. 15.24.110
  - Automatic sprinkler systems
    - Connections to water supply..... 15.24.020
  - Bond requirements 15.24.090
  - Breaking of drain valve seals prohibited
    - Exception 15.24.130

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
- Compliance with department requirements..... 15.24.140
- Gate or control valves required 15.24.120
- Meters
  - Required when 15.24.040
- Private fire protection
  - Authority of department. 15.24.010
- Readiness to serve charge.. 15.24.150
- Size of connections
  - Discretion of director ... 15.24.030
- Unmetered connections
  - Bond required
    - Sworn statement of water use 15.24.060
  - Failure to file bond or statement
    - Discontinuance of service..... 15.24.070
  - Inspections..... 15.24.080
  - Permit required..... 15.24.050
- Standard industrial classification
  - Defined..... 15.04.355
- Stormwater
  - Defined..... 15.04.360
- Stormwater management
  - Alterations of floodplains and drainage channels
    - Requirements 15.64.180
  - Appeal and variance request procedure..... 15.64.100
  - Applicability of floodplain regulations..... 15.64.160
  - Application of Tennessee Water Quality Control Act and Federal Water Pollution Control Act . 15.64.150
  - Construction that may increase degree of flooding prohibited ... 15.64.120
  - Definitions..... 15.64.010
  - Development within floodways
    - Restrictions 15.64.170
  - Director of the department of water and sewerage services
    - Authority..... 15.64.020

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Emergency health orders, enforcement 15.64.225
Fees 15.64.032
Floodproofing measures ... 15.64.200
Infill development; applicability and requirements..... 15.64.131
Issuance of building and occupancy permits
Approval by director, department of water and sewerage services 15.64.110
Stormwater plan and permit review charge..... 15.64.215
Liability limitation..... 15.64.210
Non-stormwater discharges 15.64.205
Notification to property owners upon amendments to flood maps..... 15.64.230
Property developments
Drainage and erosion control plans required when..... 15.64.140
Public notice requirements. 15.64.105
Residential development along the Cumberland River 15.64.175
Responsibility for off-site drainage improvements 15.64.190
Review of building permits
Drainage control referrals
Exemptions..... 15.64.130
Stormwater division 15.64.015
Reports..... 15.64.034
Stormwater management commission
Compensation..... 15.64.060
Created..... 15.64.040
Organization 15.64.050
Regulations—Meetings—Duties.. 15.64.080
Replacement of members 15.64.070
Voting regulations..... 15.64.090

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Violations
Penalties 15.64.220
Toxic pollutant
Defined..... 15.04.370
Trailer courts
Sewage disposal 10.40.080
Treatment works
Defined..... 15.04.380
Twenty-four-hour, flow proportional composite sample
Defined..... 15.04.385
Unpolluted water
Defined..... 15.04.390
User
Defined..... 15.04.400
Waste
Defined..... 15.04.410
Wastewater
Defined..... 15.04.420
Wastewater constituents and characteristics
Defined..... 15.04.430
Water and sewer service billing procedures
Adjustments
Concealed leaks and vandalism 15.48.180
Due to incorrect meters . 15.48.170
Errors in meter readings. 15.48.190
Exception to procedures. 15.48.140
Preparation of ledgers... 15.48.160
Applicability of rates and charges 15.48.010
Billing period..... 15.48.070
Bills mailed to property served
Exception 15.48.080
Collection—Mailing of bills..... 15.48.110
Combined bills rendered to all consumers..... 15.48.060
Delinquent bills
Discontinuance of service
Service charges..... 15.48.230
Deposits
Service initiation fees ... 15.48.030

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Establishment of billing districts—Authority of department 15.48.050
Estimating bill
Defective meters 15.48.200
Government housing projects 15.48.040
Inoperative meters
Estimation of water usage 15.48.090
Meter reading and billing procedure 15.48.020
Meter readings recorded on bill 15.48.100
New account connection
Same day service charge 15.48.290
New water meter installation
Inspection charge 15.48.300
Payment
Pay stations 15.48.120
Returned check charge .. 15.48.260
Time extensions
Restoration of service. 15.48.220
Payment due
Net and gross bills 15.48.210
Reinstatement charge following temporary disconnection 15.48.270
Restoration of service following payment of account 15.48.240
Successive adjustments when 15.48.150
Surcharge 15.48.035
Temporary service
Minimum charge 15.48.130
Unauthorized reconnection
Disconnection of supply pipes 15.48.250
Water and sewer service system
Connection to water main or sewer
Permit required 15.12.040
Construction and improvement of service lines
Approval required—Appeal 15.12.080
WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Consumers furnishing water to other persons prohibited 15.12.180
Council approval of fees and charges required .. 15.12.055
Cross-connections prohibited
Contamination prevention requirements 15.12.070
Damage resulting from pressure changes
Customer's responsibility 15.12.190
Discontinuance of service on order of owner
Exception 15.12.130
Disposition of entire gross revenue
Funds established 15.12.090
Disposition of miscellaneous revenue
Funds established 15.12.100
Duty of police department to report violations ... 15.12.210
Interference with department property prohibited
Unauthorized connections
Blocking fire hydrants 15.12.200
Persons owing for past services not eligible for water services 15.12.170
Pre-existing special contracts not affected by this title 15.12.030
Public fire protection 15.12.110
Reconnection
Permit required 15.12.060
Regulations
Authority of director 15.12.010
Repairs and extensions
Authority to shut off water 15.12.140
Reservoirs
Not open to public 15.12.120
Right of entry when 15.12.220
Service contract
Prerequisites 15.12.020

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Use of fire hydrants
Permission required 15.12.150
Use of special hydrant wrenches 15.12.160
Use of water
Permit required..... 15.12.050
Violations
Discontinuance of service 15.12.230
Penalties
Revocation of permits 15.12.240
Water and sewer system extensions
Applications
Approval
Timely reports to council 15.52.010
Council approval of extensions, additions, improvements, or works..... 15.52.050
Eligibility for use
Conveyance to metropolitan government 15.52.040
Extensions in new subdivisions
Approval required..... 15.52.020
Installation
Compliance with all regulations 15.52.030
Water main tapping fees and charges
Applicability of chapter.... 15.20.010
Extensions
Property of metropolitan government 15.20.020
Frontage defined..... 15.20.070
Intermediate mains
Financed by developer Reimbursement..... 15.20.080
Oversize mains 15.20.090
Payment
Installment plan
Delinquent accounts .. 15.20.050
Reimbursements..... 15.20.100
Review of plan and permit
Schedule of charges 15.20.110
Tapping fees
Applicable when 15.20.040
WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Schedule 15.20.030
Unpaid fees
Lien on property 15.20.060
Water system capacity charge 15.20.045
Water mains, service connections and meters
General regulations
Gate valves
Regulations..... 15.16.040
Installation
Compliance with regulations..... 15.16.010
Permit required 15.16.020
Permits restricted to licensed plumbers when 15.16.030
Service connections, pipes and lines
Backfilling ditches
Requirements..... 15.16.340
Connections
By department
Permission required when 15.16.130
Continuance of service
Proper maintenance of service pipes required 15.16.210
Curb cocks and corporation cocks restrictions 15.16.280
Equipment that takes abnormal drafts from service supply line prohibited 15.16.350
Equipment which increases pressure prohibited
Exception..... 15.16.360
Failure to make timely repairs
Discontinuance of service..... 15.16.220
Inspection of pipe work required 15.16.320
Inspection required before tapping main 15.16.290

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
- Maintenance of service connection
  - Owner's and department's responsibility 15.16.200
- Meter specifications..... 15.16.250
- More than one supply pipe prohibited
  - Exception..... 15.16.310
- Proper connections required for water service 15.16.190
- Reconnection to newly laid mains..... 15.16.180
- Regulation and enforcement—Authority of director..... 15.16.230
- Service line installations
  - Permitted 15.16.140
- Service pipes
  - Ditch regulations 15.16.160
  - Specifications..... 15.16.240
- Sprinkler connections
  - Valve at curb required 15.16.300
- Taps, connections and service pipes
  - Size restrictions..... 15.16.150
- Use of one ditch for sewer and water service pipes prohibited..... 15.16.330

Water mains
- Cover requirements 15.16.080
- Length restrictions 15.16.070
- Operation of valves
  - Permission required .. 15.16.120
- Pipe specifications 15.16.060
- Private mains
  - Installation supervised by inspector 15.16.090
  - Location
    - Compliance with department requirements .. 15.16.100
- Size restrictions 15.16.050
- Valves
  - Regulations..... 15.16.110

Water meters
- Accessibility 15.16.440

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
- Exposure of meters to cold or contamination prohibited..... 15.16.470
- Furnished by department
  - Exceptions..... 15.16.390
- Improper meter size
  - Authority of director to require change 15.16.420
- Installation and repair ... 15.16.400
- Interference with meters prohibited..... 15.16.490
- Meter boxes
  - Specifications..... 15.16.450
- Meter repairs
  - Owners billed when .. 15.16.410
- Meter setting
  - Prohibited fittings 15.16.460
- Preventing employees from reading or inspecting meters prohibited..... 15.16.500
- Repair of meter
  - Owner's responsibility when 15.16.480
- Required 15.16.370
- Separate meters required for each premises .. 15.16.430
- Size restrictions 15.16.380

Water rates and charges
- Apartment complexes
  - Separate connections permitted when..... 15.32.110
- Classes of customers designated 15.32.010
- Computation of net and gross billing 15.32.190
- Free water
  - Modification of rates.... 15.32.150
- Metered sprinkler system
  - Minimum annual charge 15.32.030
- Miscellaneous water uses
  - Rates..... 15.32.050
- Water supply
  - Conditions of use..... 15.32.060
- Monthly meter rates 15.32.020
- Private fire hydrants 15.32.170
- Reports of water division .. 15.32.210
- Tenement property
  - Classification 15.32.070

WATER, SEWERS AND OTHER PUBLIC SERVICES (Cont'd.)
Rate assessment
Billing 15.32.080
Service connections 15.32.100
Unmetered automatic sprinkler systems
Monthly service charge . 15.32.160
Using water without paying
Unlawful 15.32.200
Water for construction purposes
Paid for by owner 15.32.180
Water use restrictions
Authority of director to impose prohibition.... 15.28.010
Failure to comply
Disconnection of service 15.28.050
Wasting water
Order to abate 15.28.040
Unlawful acts 15.28.020
Waters of the State of Tennessee
Defined 15.04.440

WATER SUPPLY AND DISTRIBUTION
Mass gatherings
Water supply and facilities. 10.44.050
Mineral, spring and other drinking water
Carbonated water preparation 10.12.030
Definitions..... 10.12.010
Information statement required 10.12.020
Trailer courts
Water supply 10.40.070

WEAPONS. See: FIREARMS AND OTHER WEAPONS

WEEDS
High weeds and debris 10.26.010

WEIGHTS AND MEASURES
Brakes inspection required when 6.76.300
Carload or bargeload shipments
Certain provisions not applicable 6.76.290

WEIGHTS AND MEASURES (Cont'd.)
Coal sales
Licensed weigher required when
Certificate..... 6.76.270
Coal sold by weight 6.76.170
Commodities sold by weight only
Exceptions..... 6.76.150
Containers
Net contents and weight statements 6.76.160
False certificates 6.76.130
Ice sold from vehicles
Scale required 6.76.180
Inaccurate or unapproved devices
Confiscation authority 6.76.120
Inspection of devices
Adjustment and replacement..... 6.76.090
Inspection records and reports 6.76.100
Licensed weigher
Appointment
Bond and certificate..... 6.76.220
Issuance of certificate..... 6.76.240
Oath 6.76.230
Required when
Application for appointment..... 6.76.210
Revocation of license..... 6.76.250
Location of scales in retail stores..... 6.76.080
Motortruck scales required when 6.76.200
Noise and amplified sound
Noise sound pressure levels; measurement .. 9.10.020
Officers established
Powers and duties 6.76.020
Petroleum products sales
Tolerances allowed 6.76.190
Refusal to permit testing
Tampering with device..... 6.76.110
Reweighing or remeasuring .. 6.76.140
Sales, weight and delivery tickets
Coal and fuel products regulations..... 6.76.260

WEIGHTS AND MEASURES (Cont'd.)
Short loads
Violation, liability and enforcement 6.76.280
Standards 6.76.010
Table of weights and measures 6.76.040
Vehicle and traffic
Size, weight and load restrictions..... 12.36.010 et seq.
See: TRAFFIC AND MOTOR VEHICLES
Weighing and measuring devices
Annual testing 6.76.060
Reporting sales 6.76.050
Weighmaster
Bond required 6.76.030
WELLS, CISTERNS AND SHAFTS
Covering required..... 11.32.020
WILDLIFE. See: ANIMALS AND FOWL
WOOD, COAL OR LUMBER
Urban services district regulations
Depositing on sidewalks... 13.32.190
WORKFORCE DEVELOPMENT PROGRAM
Diversified business participation..... 2.211.020
Established..... 2.211.010
Participation 2.211.030
WORKHOUSES. See: PRISONS AND PRISONERS
WRECKER AND TOWING SERVICES
Assistance in enforcement by police officers..... 6.80.040
Definitions 6.80.010
Drivers, driver helpers and employees
Driver's permit
Annual renewal 6.80.340
Fees, transfers, expiration and display 6.80.330
Required for drivers and driver helpers 6.80.310
WRECKER AND TOWING SERVICES (Cont'd.)
Licensee responsibilities
Compliance required.... 6.80.320
Emergency wrecker service
Accident reports 6.80.565
Application
Conditions 6.80.520
Emergency situations
Purpose 6.80.510
Fees charged..... 6.80.550
Liability insurance required 6.80.530
License
Fees, expiration, transfer and display..... 6.80.535
Issuance and contents ... 6.80.525
Required to provide emergency wrecker service 6.80.515
Licensees to provide service..... 6.80.540
Penalties for violations 6.80.585
Prohibited acts..... 6.80.580
Rate card
Display..... 6.80.555
Service zones..... 6.80.545
Storage facility requirements..... 6.80.575
Towing place designated... 6.80.570
Wrecker driver
Duty to remove accident debris 6.80.560
Equipment and operation
Contracting for service with metropolitan government..... 6.80.415
Daily manifests..... 6.80.445
Disposition of revenue..... 6.80.440
Information required on vehicle..... 6.80.410
Inspection and maintenance of vehicles
Compliance required.... 6.80.420
Minimum equipment required 6.80.425
Operating records..... 6.80.430
Prohibited acts..... 6.80.450
Receipts 6.80.435
Towing of unauthorized vehicles..... 6.80.452

WRECKER AND TOWING SERVICES (Cont'd.)
Violations and amount of fines 6.80.460
Wrecker booms 6.80.455
Hearings
Hearing before suspension, revocation or probation and after refusal to renew license or permit 6.80.620
Hearing for applicant for license 6.80.610
License for operation
Applications
Conditions 6.80.120
Liability insurance required 6.80.140
Emergency wrecker service and nonconsent tows ... 6.80.145
License
Annual renewal 6.80.165
Fees, expiration, transfer and display 6.80.160
Issuance and contents ... 6.80.150
Required to provide wrecker service 6.80.110
Making false statement
Power not to grant application 6.80.130
Nonconsent tows 6.80.170
Payment of fee 6.80.190
Police department impound lot notification requirements 6.80.175
Signage; unpaid parking violations 6.80.195
Vehicle tow service requirements and records 6.80.185
Metropolitan Nashville Airport Authority 2.60.320
Miscellaneous driving rules
Putting glass, nails or other injurious materials on highway
Clearing accident wreckage 12.68.150
Towing of vehicles 12.68.110
WRECKER AND TOWING SERVICES (Cont'd.)
Permits for wreckers
Issuance
Contents 6.80.220
Permit required for wreckers 6.80.210
Wrecker permit
Fees, transfer, expiration and display 6.80.230
Purpose and intent of provisions 6.80.020
WRITS. See: SUMMONS AND WRITS

— Z —

ZONING (Generally)
Metropolitan council
Advertisement and notice concerning rezone hearings or urban renewal projects 2.04.040
Urban forester
Duties under zoning ordinance 2.104.090
ZONING (Title 17)
Administration and procedures
Amendments to zoning code or official zoning map
Applications 17.40.060
Authority 17.40.050
Development plan 17.40.106
Enactment 17.40.080
Inclusionary housing incentive 17.40.055
Mapping of amendment . 17.40.090
Planning commission recommendation ... 17.40.070
Reapplications 17.40.100
Specific plan—Purpose and intent 17.40.105
Submission of amendatory ordinances to the department of law .. 17.40.075
Application fees
Fees established by the Board of zoning appeals 17.40.770
Planning commission . 17.40.760
Zoning administrator . 17.40.750

ZONING (Title 17) (Cont'd.)
Generally 17.40.740
Board of zoning appeals
Action by the board 17.40.240
Appeal of final site plan action 17.40.260
Applicant 17.40.275
Assistance..... 17.40.220
Conditions 17.40.270
Conflict of interest 17.40.230
Hearing required 17.40.210
Membership..... 17.40.190
Powers 17.40.180
Terms of office..... 17.40.200
Time limits for permits.. 17.40.250
Enforcement
Authority..... 17.40.590
Notification 17.40.600
Penalties 17.40.620
Remedies 17.40.630
Violations 17.40.610
Historic zoning commission
Membership..... 17.40.400
Moratorium for proposed historic landmark district ... 17.40.430
Powers and duties 17.40.410
Preservation permit 17.40.420
Nonconforming uses, structures, lots and signs
General 17.40.640
Nonconformance to operational performance standards..... 17.40.680
Nonconforming lot area. 17.40.670
Nonconforming signs ... 17.40.690
Nonconforming structures..... 17.40.660
Nonconforming uses 17.40.650
Official zoning map
Official zoning map established 17.40.030
Zoning district boundaries 17.40.040
Overlay district procedures
Generally 17.40.110
Impact overlay district .. 17.40.150
Institutional overlay district 17.40.140
Neighborhood landmark (NL) district..... 17.40.160
Planned unit development (PUD) overlay 17.40.120
Urban design overlay district 17.40.130
Permits and certificates of compliance
Applicability 17.40.520
Certificate of compliance..... 17.40.580
Design-based multi-family design sites authority 17.40.545
Final site plan authority . 17.40.540
Permits within an historic overlay district 17.40.550
Permits within the airport overlay district 17.40.570
Permits within the floodplain overlay district 17.40.560
Zoning permit application 17.40.530
Public notification
Applicability 17.40.700
Notice by mail 17.40.720
Notice by newspaper 17.40.710
Public notice signs 17.40.730
Sign procedures
Overall signage plan 17.40.500
Permits and compliance tag 17.40.490
Unsafe, illegal, dilapidated and abandoned signs.... 17.40.510
Site plan review and approval
Applicability 17.40.165
Final site plan 17.40.170
Notice 17.40.175
Special exception uses
Applications 17.40.290
Authority..... 17.40.280
Findings of fact 17.40.320
Planning commission report 17.40.300
Public hearing required . 17.40.310

ZONING (Title 17) (Cont'd.)
Tree protection and replacement procedures
General 17.40.440
General exemptions 17.40.460
Off-site plantings..... 17.40.480
Tree removal permit procedures 17.40.470
Variances
Applications 17.40.350
Authority..... 17.40.330
Findings of fact 17.40.390
Hearing required 17.40.360
Limits to jurisdiction.... 17.40.340
Review standards..... 17.40.370
Special hillside exception..... 17.40.380
Zoning administrator
Authority and responsibilities..... 17.40.010
Board of zoning appeals support..... 17.40.020
Adult entertainment overlay district
Locational standards..... 17.36.260
Purpose and intent..... 17.36.250
Airport overlay district
Applicability 17.36.240
General provisions..... 17.36.230
Applicability..... 17.04.020
Contextual overlay district
Design guidelines..... 17.36.470
Generally..... 17.36.500
Overlay designation 17.36.460
Permitted land uses..... 17.36.480
Purpose and intent..... 17.36.450
Variation of conventional standards 17.36.490
Corridor design overlay district
Applicability of standards . 17.36.530
Overlay designation 17.36.520
Permitted land uses..... 17.36.550
Provisions re..... 17.36.560
Purpose and intent..... 17.36.510
Variations to conventional standards 17.36.540
Definitions of general terms.. 17.04.060
Design-Based Multi-Family
Administration..... 17.38.010.C
Adopted 17.38.010
Building types..... 17.38.020.B

ZONING (Title 17) (Cont'd.)
Definitions..... 17.38.020.D
Dooryard 17.38.030.F
Frontage types..... 17.38.030.B
House court..... 17.38.020.H
Interpreting standards..... 17.38.020.C
Low-rise courtyard flats ... 17.38.020.M
Low-rise flats..... 17.38.020.N
Manor house..... 17.38.020.K
Multiplex..... 17.38.020.L
Overview..... 17.38.020.E
Overview..... 17.38.030.C
Plex house..... 17.38.020.J
Porch engaged..... 17.38.030.E
Porch projecting..... 17.38.030.D
Purpose..... 17.38.020.A
Purpose..... 17.38.030.A
Residential limited..... 17.38.010.B
Residential neighborhood.. 17.38.010.A
Single family/two family .. 17.38.020.F
Stoop..... 17.38.030.G
Terrace 17.38.030.H
Townhouse court 17.38.020.I
Townhouse 17.38.020.G
Detached accessory dwelling unit (DADU) overlay district
Bulk provisions..... 17.36.720
Design guidelines..... 17.36.700
Detached accessory dwelling unit overlay district..... 17.36.730
Overlay designation 17.36.690
Permitted land uses..... 17.36.710
Purpose and intent..... 17.36.680
District bulk regulations
Accessory building floor area controls..... 17.12.050
Alternative minimum lot size and setbacks for attached housing..... 17.12.110
Building height controls ... 17.12.060
Compact development..... 17.12.080
Conservation development. 17.12.090
District bulk tables..... 17.12.020
Other setbacks..... 17.12.040
Purpose and general provisions 17.12.010
Single-family cottage developments..... 17.12.100
Special floor area ratio (FAR) provisions 17.12.070
Street setbacks..... 17.12.030

ZONING (Title 17) (Cont'd.)
Street setbacks within the urban zoning overlay district 17.12.035
Downtown Code (DTC)
Adopted 17.37.010
Environmental and operational performance standards
Environmental performance standards
Applicability 17.28.020
Floodplain/floodway development standards 17.28.040
Hillside development standards 17.28.030
Problem soil Requirements 17.28.050
Protection of Cedar Glade plant communities 17.28.060
Purpose and intent 17.28.010
Trees 17.28.065
Operational performance standards
Air pollution control 17.28.101
Applicability 17.28.080
Compliance certification 17.28.104
Lighting 17.28.100
Purpose and intent 17.28.070
Storage capacity of flammable and combustible liquids, liquid gases and gases 17.28.102
Underground utilities.... 17.28.103
Exceptions 17.04.030
Fees, in-lieu contributions and other assessments, estimates or payments... 17.04.055
Floodplain overlay district
Development standards 17.36.200
Floodplain alterations..... 17.36.210
General provisions..... 17.36.170
Official floodplain map 17.36.180
Permitted land uses 17.36.190
Report to stormwater management commission..... 17.36.220
Greenway overlay district
Applicability 17.36.140
ZONING (Title 17) (Cont'd.)
Dedication incentives..... 17.36.160
General provisions..... 17.36.150
Purpose and intent 17.36.130
Historic overlay districts
Historic districts defined... 17.36.120
Historic overlay districts established..... 17.36.110
Purpose and intent 17.36.100
Impact overlay district
Effect of zone changes on impact area policies... 17.36.370
I-440 Impact Area 1 ..... 17.36.380
I-440 Impact Area 2 ..... 17.36.390
Objectives of the impact overlay district..... 17.36.360
Inclusionary housing
Enforcement 17.40.810
Purpose and applicability of inclusionary housing provisions.... 17.40.780
Requirements for inclusionary housing.. 17.40.790
Standards for construction and occupancy of affordable and/or workforce housing.... 17.40.800
Sunset provisions 17.40.820
Institutional overlay district
Development standards 17.36.350
Master development plan .. 17.36.340
Purpose and intent 17.36.330
Land use development standards
General provisions
Purpose and intent 17.16.010
Uses permitted as accessory (A)
Applicability 17.16.240
Commercial accessory uses 17.16.280
Communication accessory uses..... 17.16.290
Industrial accessory uses 17.16.300
Institutional accessory uses 17.16.260
Medical accessory uses . 17.16.275
Office accessory uses ... 17.16.270
Other accessory uses 17.16.330
Recreation and entertainment accessory uses..... 17.16.320

ZONING (Title 17) (Cont'd.)
Residential accessory uses 17.16.250
Waste management accessory uses..... 17.16.310
Uses permitted by special exception (SE)
Applicability 17.16.140
Commercial special exceptions..... 17.16.175
Communication special exceptions..... 17.16.180
General provisions 17.16.150
Industrial special exceptions..... 17.16.185
Institutional special exceptions..... 17.16.170
Other special exception uses 17.16.230
Recreation and entertainment special exceptions.. 17.16.220
Residential special exceptions..... 17.16.160
Transportation special exceptions..... 17.16.190
Utility special exceptions..... 17.16.200
Waste management special exceptions.. 17.16.210
Uses permitted with conditions (PC)
Applicability 17.16.020
Commercial uses..... 17.16.070
Communication uses 17.16.080
Educational uses 17.16.040
Industrial uses..... 17.16.090
Institutional uses 17.16.035
Medical uses 17.16.060
Office uses 17.16.050
Other uses..... 17.16.130
Recreation and entertainment uses . 17.16.120
Residential uses..... 17.16.030
Transportation uses 17.16.105
Utility uses..... 17.16.100
Waste management uses. 17.16.110
Landscaping, buffering and tree requirements
General provisions
Exceptions 17.24.050
Landscape plan required 17.24.020
Maintenance of required landscape materials 17.24.080
Plans for street trees and streetscape 17.24.075
Plant standards..... 17.24.030
Purpose and intent 17.24.010
Scenic landscape easements..... 17.24.070
Spacing standards..... 17.24.040
Special screening requirements 17.24.060
Landscape buffer yard requirements
Determination of landscape buffer yard requirements.. 17.24.200
Exemptions 17.24.190
Landscape buffer yard design and materials 17.24.210
Landscape buffer yard standards..... 17.24.240
Other uses within landscape buffer yards..... 17.24.220
Purpose and intent 17.24.180
Table of landscape buffer yard requirements 17.24.230
Parking area screening and landscaping
Applicability 17.24.140
Interior planting requirements 17.24.160
Nonconforming parking areas 17.24.170
Perimeter screening requirements 17.24.150
Purpose and intent 17.24.130
Neighborhood landmark district
District defined 17.36.420
District established 17.36.410
Purpose and intent..... 17.36.400
Overlay districts
Adult entertainment overlay district
Locational standards 17.36.260
Purpose and intent 17.36.250
Airport overlay district
Applicability 17.36.240
General provisions 17.36.230

ZONING (Title 17) (Cont'd.)
Commercial compatibility overlay
Generally 17.36.780
Overlay designation 17.36.750
Permitted land uses 17.36.760
Purpose and intent 17.36.740
Variation of conventional land use development standards 17.36.770
Contextual overlay district
Design guidelines 17.36.470
Generally 17.36.500
Overlay designation 17.36.460
Permitted land uses 17.36.480
Purpose and intent 17.36.450
Variation of conventional standards 17.36.490
Corridor design overlay district
Applicability of standards 17.36.530
Overlay designation 17.36.520
Permitted land uses 17.36.550
Provisions re 17.36.560
Purpose and intent 17.36.510
Variations to conventional standards 17.36.540
Detached accessory dwelling unit (DADU) overlay district
Bulk provisions 17.36.720
Design guidelines 17.36.700
Detached accessory dwelling unit overlay district 17.36.730
Overlay designation 17.36.690
Permitted land uses 17.36.710
Purpose and intent 17.36.680
Established
Applicability 17.36.020
Definitions 17.36.020A
Purpose and intent 17.36.010
Floodplain overlay district
Development standards .. 17.36.200
Floodplain alterations ... 17.36.210
General provisions 17.36.170
Official floodplain map . 17.36.180
Permitted land uses 17.36.190

ZONING (Title 17) (Cont'd.)
Report to stormwater management commission 17.36.220
Greenway overlay district
Applicability 17.36.140
Dedication incentives ... 17.36.160
General provisions 17.36.150
Purpose and intent 17.36.130
Historic overlay districts
Historic districts defined 17.36.120
Historic overlay districts established 17.36.110
Purpose and intent 17.36.100
Impact overlay district
Effect of zone changes on impact area policies. 17.36.370
I-440 Impact Area 1 ..... 17.36.380
I-440 Impact Area 2 ..... 17.36.390
Objectives of the impact overlay district 17.36.360
Institutional overlay district
Development standards .. 17.36.350
Master development plan 17.36.340
Purpose and intent 17.36.330
Neighborhood landmark district
District defined. 17.36.420
District established 17.36.410
Purpose and intent 17.36.400
Planned unit development (PUD) district
Development bonuses ... 17.36.090
General development standards 17.36.060
General provisions 17.36.040
Minimum performance standards 17.36.050
Nonresidential and mixed-use standards 17.36.080
Purpose and intent 17.36.030
Residential standards 17.36.070
Two-story residential overlay district
Guidelines 17.36.650
Overlay designation 17.36.640
Permitted land uses 17.36.660
Purpose and intent 17.36.630

ZONING (Title 17) (Cont'd.)
Two-story residential overlay district 17.36.675
Variation of conventional standards 17.36.670
Urban design overlay district
Design guidelines 17.36.290
Development incentives . 17.36.310
Overlay designation 17.36.280
Permitted land uses 17.36.300
Purpose and intent 17.36.270
Variation of conventional standards 17.36.320
Urban zoning overlay district
Applicability 17.36.440
Purpose and intent 17.36.430
Parking, loading and access
Access management
Access from arterial streets 17.20.170
Access from nonarterial streets 17.20.160
Measurement of distances 17.20.190
Multimodal transportation analysis 17.20.140
Protection of residential areas 17.20.150
Visibility 17.20.180
General provisions
Applicability 17.20.020
Purpose and intent 17.20.010
Parking and loading requirements
Adjustments to required parking 17.20.040
Bicycle parking 17.20.135
Deferred parking 17.20.090
Handicapped parking.... 17.20.050
Loading space requirements 17.20.130
Off-site parking 17.20.080
Parking area design standards 17.20.060
Parking reduction for preservation of protected and heritage trees..... 17.20.110
ZONING (Title 17) (Cont'd.)
Parking requirements established 17.20.030
Provision of sidewalks .. 17.20.120
Queuing requirements for drive-through facilities..... 17.20.070
Right to appeal and seek variances 17.20.125
Shared parking 17.20.100
Planned unit development (PUD) district
Development bonuses 17.36.090
General development standards 17.36.060
General provisions..... 17.36.040
Minimum performance standards 17.36.050
Nonresidential and mixed-use standards .. 17.36.080
Purpose and intent..... 17.36.030
Residential standards 17.36.070
Residential Accessory Structure Overlay
Guidelines..... 17.36.590
Overlay designation 17.36.580
Permitted land uses..... 17.36.600
Purpose and intent..... 17.36.570
Residential accessory structure overlay district..... 17.36.620
Variation of conventional standards 17.36.610
Rules for construction of language 17.04.050
Severability 17.04.040
Sign regulations
Billboards 17.32.150
Community facility on-premises signs..... 17.32.090
Computations..... 17.32.160
Exempt signs 17.32.040
General provisions..... 17.32.020
Landmark signs..... 17.32.145
On-premises signs
CL, CL-NS, CS, CS-NS, CA, CA-NS, CF, CF-NS, SCC, SCC-NS, SCR, SCR-NS, IWD, IR and IG districts..... 17.32.130
DTC district..... 17.32.140

ZONING (Title 17) (Cont'd.)
MUN, MUN-NS, MUN-A, MUN-A-NS, MUL, MUL-NS, MUL-A, MUL-A-NS, ON, OL, OG, OG-NS, OR20, OR20-NS, OR20-A, OR20-A-NS, OR40, OR40-NS, OR40-A, OR40-A-NS, CN, CN-NS, CN-A, CN-A-NS, CL-A, CL-A-NS, CS-A, CS-A-NS, SCN, SCN-NS districts... 17.32.110
ORI, ORI-NS, ORI-A, ORI-A-NS, MUG, MUG-NS, MUG-A, MUG-A-NS, MUI, MUI-NS, MUI-A, and MUI-A-NS districts 17.32.120
On-premises signs in residential districts.... 17.32.080
Permanent on-premises signs..... 17.32.070
Permitted on-premises temporary signs..... 17.32.060
Prohibited signs 17.32.050
Purpose and intent..... 17.32.010
Rationale, definition, system for regulation and overall use..... 17.32.030
Title and purpose..... 17.04.010
Two-story residential overlay district
Guidelines..... 17.36.650
Overlay designation 17.36.640
Permitted land uses..... 17.36.660
Purpose and intent..... 17.36.630
Two-story residential overlay district..... 17.36.675
Variation of conventional standards 17.36.670
Urban design overlay district
Design guidelines..... 17.36.290
Development incentives ... 17.36.310
Overlay designation 17.36.280
Permitted land uses..... 17.36.300
Purpose and intent..... 17.36.270

ZONING (Title 17) (Cont'd.)
Variation of conventional standards 17.36.320
Urban zoning overlay district
Applicability 17.36.440
Purpose and intent..... 17.36.430
Zoning districts and land uses
District land use tables..... 17.08.030
Zoning districts described . 17.08.020
Zoning districts established..... 17.08.010